SUPPLEMENT NO. 52
VOLUMES I, II AND III
October 2026

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-26-0022, enacted August 18, 2026.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xxvii	xi—xxvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11, SH:12	SH:11, SH:12
CD5:5—CD5:26.9	CD5:5—CD5:26.11
CD5:55—CD5:60	CD5:55—CD5:62.9
CD5:74.2.1—CD5:74.4	CD5:74.3, CD5:74.4
CD5:140.9—CD5:158.4	CD5:141—CD5:158.6
CD5:197—CD5:206	CD5:197—CD5:206.1
CD5:259—CD5:263	CD5:259—CD5:265
CD8:2.1—CD8:16.1	CD8:3—CD8:16.1
CD8:39—CD8:50	CD8:39—CD8:47
CD8:101—CD8:106	CD8:101—CD8:106
CD10:1—CD10:10.1	CD10:1—CD10:10.1
CD10:17—CD10:28.2	CD10:17—CD10:28
CD10:47—CD10:50.3	CD10:47—CD10:50.3
CD10:75, CD10:76	CD10:75, CD10:76
CD10:85—CD10:88	CD10:85—CD10:88
	VOLUME II
CCT:41	CCT:41—CCT:43
	VOLUME III
CD21:1—CD21:32.2	CD21:1—CD21:32.5
CD21:47—CD21:76.1	CD21:47—CD21:76.11
CD21:89, CD21:90	CD21:89, CD21:90
CD21:102.1—CD21:108	CD21:103—CD21:108.6

Remove Old Pages	*Insert New Pages*
CD21:115—CD21:118	CD21:115—CD21:118
CD21:213—CD21:222.1	CD21:213—CD21:222.1
CD21:237—CD21:240.4	CD21:237—CD21:240.4
CD21:253—CD21:258	CD21:253—CD21:258
CD21:338.19—CD21:338.22	CD21:338.19—CD21:338.26
CD21:357—CD21:362	CD21:357—CD21:362.1
CD21:371, CD21:372	CD21:371, CD21:372
CD21:392.1—CD21:396.2	CD21:393—CD21:396.6
CD21:469—CD21:488	CD21:469—CD21:494
CD22:1—CD22:38	CD22:1—CD22:38
CD22:51—CD22:76	CD22:51—CD22:76.1
CD22:85—CD22:92	CD22:85—CD22:92

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

CIVICPLUS
Municode Codification
info@civicplus.com | 888-228-2233 | www.civicplus.com

SUPPLEMENT NO. 51
VOLUMES I, II AND III
April 2026

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-26-0005, enacted March 10, 2026.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xvii—xxvii	xvii—xxvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11, SH:12	SH:11, SH:12
CD3:117—CD3:120.2	CD3:117—CD3:120.2
CD5:140.5—CD5:140.8	CD5:140.5—CD5:140.8
CD8:11, CD8:12	CD8:11, CD8:12
CD8:55—CD8:58	CD8:55—CD8:58
CD8:103—CD8:106	CD8:103—CD8:106
CD9:7	CD9:7
CD9:43—CD9:45	CD9:43—CD9:46
CD10:10.1	CD10:10.1
CD10:103—CD10:105	CD10:103—CD10:105
	VOLUME II
CD18:1—CD18:308	CD18:1—CD18:313
CCT:39, CCT:40	CCT:39—CCT:41

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 50
VOLUMES I, II AND III
December 2025

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-25-0020, enacted November 18, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11, SH:12	SH:11, SH:12
	VOLUME II
CD16:13—CD16:15	CD16:13—CD16:15
CD16:178.1—CD16:178.3	CD16:178.1—CD16:178.3
CCT:39, CCT:40	CCT:39, CCT:40

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 49
VOLUMES I , II AND III
September 2025

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-25-0015, enacted August 19, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xvii—xxvii	xvii—xxvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11	SH:11, SH:12
CD5:25, CD5:26	CD5:25, CD5:26
CD5:259—CD5:261	CD5:259—CD5:263
CD10:67—CD10:68.1	CD10:67—CD10:68.1
	VOLUME II
CD16:15	CD16:15
CD16:183—CD16:186	CD16:183—CD16:186
CD18:9—CD18:21	CD18:9—CD18:21
CD18:151—CD18:156	CD18:151—CD18:156
CD18:173, CD18:174	CD18:173—CD18:174.1
CD18:189, CD18:190	CD18:189—CD18:190.1
CD18:303—CD18:308	CD18:303—CD18:308
CCT:39, CCT:40	CCT:39, CCT:40
	VOLUME III
CD21:267, CD21:268	CD21:267, CD21:268
CD21:471, CD21:472	CD21:471, CD21:472

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 48
VOLUMES I , II AND III
July 2025

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-25-0006, enacted April 22, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xxvii	xi—xxvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11	SH:11
CD1:11, CD1:12	CD1:11, CD1:12
CD2:13, CD2:14	CD2:13—CD2:14.1
CD3:127—CD3:130	CD3:127—CD3:130
CD5:15, CD5:16	CD5:15, CD5:16
CD5:139—CD5:140.9	CD5:139—CD5:140.10
CD10:21—CD10:28.2	CD10:21—CD10:28.2
CD10:72.1	CD10:72.1
	VOLUME II
CD16:61—CD16:70	CD16:61—CD16:70.1
CCT:39	CCT:39, CCT:40
	VOLUME III
CD21:467—CD21:478	CD21:467—CD21:478.4

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 47
VOLUMES I , II AND III
March 2025

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-24-0033, enacted December 17, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xvii—xviii.i	xvii—xviii.i
xxvii	xxvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11	SH:11
CD3:15, CD3:16	CD3:15, CD3:16
CD3:117—CD3:120.5	CD3:117—CD3:120.5
CD3:151, CD3:152	CD3:151, CD3:152
CD5:25, CD5:26	CD5:25, CD5:26
CD5:215—CD5:216.1	CD5:215—CD5:216.1
CD5:229—CD5:234	CD5:229—CD5:234.1
CD5:255—CD5:257	CD5:255—CD5:261
CD6:19, CD6:20	CD6:19, CD6:20
	VOLUME II
CD16:1, CD16:2	CD16:1, CD16:2
CD16:13—CD16:15	CD16:13—CD16:15
CD16:25, CD16:26	CD16:25—CD16:26.1
CD16:178.1, CD16:178.2	CD16:178.1—CD16:178.3
CD18:45—CD18:48	CD18:45—CD18:48.1
CCT:37	CCT:37—CCT:39
	VOLUME III
CD21:1—CD21:26.1	CD21:1—CD21:26.3
CD21:43—CD21:50.1	CD21:43—CD21:50.4
CD21:60.1—CD21:64.1	CD21:61—CD21:64.3
CD21:73, CD21:74	CD21:73—CD21:74.1

Remove Old Pages	*Insert New Pages*
CD21:81, CD21:82	CD21:81—CD21:82.1
CD21:131—CD21:136.1	CD21:131—CD21:136.1
CD21:159—CD21:164.1	CD21:159—CD21:164.2
CD21:217—CD21:222.1	CD21:217—CD21:222.1
CD21:237—CD21:240.4	CD21:237—CD21:240.4
CD21:253—CD21:257	CD21:253—CD21:258
CD21:271—CD21:278.1	CD21:271—CD21:278.6
CD21:287—CD21:290	CD21:287—CD21:290.1
CD21:295—CD21:298	CD21:295—CD21:298.1
CD21:341—CD21:348.5	CD21:341—CD21:348.10
CD21:366.3, CD21:366.4	CD21:366.3, CD21:366.4
CD21:389—CD21:392.2	CD21:389—CD21:392.3
CD22:1—CD22:46	CD22:1—CD22:98

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 46
VOLUMES I , II AND III
September 2024

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-24-0011(Emerg.), enacted May 14, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xvii, xviii	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11	SH:11
CD5:67—CD5:74.2	CD5:67—CD5:74.2.1
CD8:147—CD8:157	CD8:147—CD8:160
	VOLUME II
CCT:37	CCT:37

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 45
VOLUMES I , II AND III
May 2024

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-24-0010, enacted April 23, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xiii, xiv	xiii, xiv
xvii, xviii	xvii—xviii.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11	SH:11
CD2:39, CD2:40	CD2:39—CD2:40.2
CD3:147—CD3:152.3	CD3:147—CD3:152.4
CD9:3—CD9:7	CD9:3—CD9:7
CD9:14.1—CD9:16	CD9:15—CD9:16.2
	VOLUME II
CD16:13, CD16:14	CD16:13, CD16:14
CD16:178.1, CD16:178.2	CD16:178.1, CD16:178.2
CCT:37	CCT:37

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 44
VOLUMES I , II AND III
April 2024

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-24-0003, enacted January 23, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xxvii	xi—xxvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9—SH:11
CD1:1—CD1:4	CD1:1—CD1:4
CD1:11, CD1:12	CD1:11—CD1:12.8
CD1:18.7—CD1:31	CD1:19—CD1:26
CD2:1, CD2:2	CD2:1, CD2:2
CD2:13—CD2:22	CD2:13—CD2:22.1
CD3:137—CD3:148	CD3:137—CD3:148.2
CD3:161—CD3:165	CD3:161—CD3:165
CD5:11—CD5:26	CD5:11—CD5:26.9
CD5:105—CD5:110	CD5:105—CD5:107
CD5:136.5, CD5:136.6	CD5:136.5—CD5:136.15
CD5:257—CD5:261	CD5:257
CD8:5, CD8:6	CD8:5, CD8:6
CD8:41—CD8:46	CD8:41—CD8:46
CD14:1—CD14:10	CD14:1—CD14:10
CD14:16.3—CD14:20.9	CD14:17—CD14:20.8
	VOLUME II
CD16:1, CD16:2	CD16:1, CD16:2
CD16:13—CD16:16	CD16:13—CD16:16.3
CD16:29—CD16:32	CD16:29—CD16:32
CD16:47—CD16:50.1	CD16:47—CD16:50.1
CD16:177, CD16:178	CD16:177—CD16:178.2

Remove Old Pages	*Insert New Pages*
CD18:43, CD18:44	CD18:43, CD18:44
CD20:1—CD20:41	CD20:1—CD20:80
CCT:35, CCT:36	CCT:35—CCT:37
	VOLUME III
CD21:202.3—CD21:204	CD21:202.3—CD21:204
CD21:253—CD21:258	CD21:253—CD21:257
CD21:305—CD21:308	CD21:305—CD21:308
CD21:345, CD21:346	CD21:345, CD21:346

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 43
VOLUMES I , II AND III
November 2023

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-23-0037, enacted October 10, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xiv	xi—xiv.i
xxi, xxii	xxi, xxii
xxvii	xxvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9, SH:10
CD2:5, CD2:6	CD2:5, CD2:6
CD2:42.1—CD2:46	CD2:43—CD2:46.1
CD2:80.1, CD2:80.2	CD2:80.1, CD2:80.2
CD3:147—CD3:152.2	CD3:147—CD3:152.3
	VOLUME II
CD18:5, CD18:6	CD18:5—CD18:6.1
CD18:111—CD18:112.7	CD18:111—CD18:112.7
CCT:35	CCT:35, CCT:36
	VOLUME III
CD21:32.1, CD21:32.2	CD21:32.1, CD21:32.2
CD21:137—CD21:140	CD21:137—CD21:140
CD21:479—CD21:487	CD21:479—CD21:488

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 42
VOLUMES I , II AND III
September 2023

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-23-0030, enacted August 1, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi, xii	xi—xii.i
xxv—xxvii	xxv—xxvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9, SH:10
CD2:5—CD2:11	CD2:5—CD2:12
CD2:47—CD2:54.2	CD2:47—CD2:54.5
CD5:215, CD5:216	CD5:215—CD5:216.1
CD5:227—CD5:232	CD5:227—CD5:232.1
CD8:13, CD8:14	CD8:13, CD8:14
CD8:113—CD8:122	CD8:113—CD8:122
	VOLUME II
CCT:35	CCT:35
	VOLUME III
CD21:147—CD21:150.2	CD21:147—CD21:150.4
CD21:461—CD21:468	CD21:461—CD21:468.1

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 41
VOLUMES I , II AND III
June 2023

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-23-0024, enacted May 16, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xvii—xx	xvii—xx
xxvii	xxvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9, SH:10
CD2:3, CD2:4	CD2:3, CD2:4
CD2:25—CD2:30	CD2:25—CD2:30
CD2:39—CD2:42.1	CD2:39—CD2:42.1
CD2:61—CD2:64	CD2:61—CD2:64
CD2:75, CD2:76	CD2:75, CD2:76
CD5:39—CD5:42	CD5:39—CD5:42.1
CD5:158.1—CD5:158.4	CD5:158.1—CD5:158.4
CD8:16.1, CD8:16.2	CD8:16.1, CD8:16.2
CD8:157—CD8:163	CD8:157
CD10:17—CD10:28	CD10:17—CD10:28.2
CD10:85—CD10:90	CD10:85—CD10:90.3
	VOLUME II
CCT:33, CCT:34	CCT:33—CCT:35
	VOLUME III
CD22:1—CD22:4	CD22:1—CD22:4
CD22:11—CD22:28	CD22:11—CD22:28.1

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 40
VOLUMES I , II AND III
May 2023

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-23-0010, enacted February 21, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xvii—xxiv	xvii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9, SH:10
CD2:9, CD2:10	CD2:9, CD2:10
CD2:80.1—CD2:80.4	CD2:80.1—CD2:80.4
CD8:13, CD8:14	CD8:13, CD8:14
CD8:128.1—CD8:132	CD8:129—CD8:132.2
CD14:3, CD14:4	CD14:3, CD14:4
CD14:20.3—CD14:20.8	CD14:20.3—CD14:20.9
	VOLUME II
CD18:1—CD18:299	CD18:1—CD18:308
CCT:33, CCT:34	CCT:33, CCT:34
	VOLUME III
CD21:263—CD21:264.3	CD21:263—CD21:264.3

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 39
VOLUMES I , II AND III
February 2023

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-23-001(Emerg.), enacted January 10, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi, xii	xi, xii
xvii—xxvii	xvii—xxvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9
CD2:3—CD2:6	CD2:3—CD2:6
CD2:23—CD2:30.1	CD2:23—CD2:30.4
CD3:31, CD3:32	CD3:31—CD3:32.1
CD8:15, CD8:16	CD8:15, CD8:16
CD8:137—CD8:146	CD8:137—CD8:146.1
CD16:5, CD16:6	CD16:5, CD16:6
CD16:49, CD16:50	CD16:49—CD16:50.1
	VOLUME II
CD18:5, CD18:6	CD18:5—CD18:6.1
CD18:20.1	CD18:20.1
CD18:106.1—CD18:108	CD18:107—CD18:108.7
CD18:297, CD18:298	CD18:297, CD18:299
CCT:33	CCT:33, CCT:34
	VOLUME III
CD21:32.1, CD21:32.2	CD21:32.1, CD21:32.2
CD21:485, CD21:486	CD21:485—CD21:487
CD22:1, CD22:2	CD22:1, CD22:2
CD22:45	CD22:45, CD22:46

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 38
VOLUMES I , II AND III
December 2022

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-22-0028(Emerg.), enacted October 11, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xxvii	xi—xxvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9
CD1:1—CD1:4	CD1:1—CD1:4
CD1:10.1—CD1:18.1	CD1:11—CD1:18.10
CD5:18.7	CD5:18.7
CD5:257	CD5:257—CD5:261
	VOLUME II
CD16:1—CD16:6	CD16:1—CD16:6
CD16:17—CD16:22	CD16:17—CD16:22
CD16:29—CD16:32	CD16:29—CD16:32.1
CD16:38.1—CD16:44	CD16:39—CD16:44.1
CCT:33	CCT:33
	VOLUME III
CD21:255—CD21:258	CD21:255—CD21:258

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 37
VOLUMES I , II AND III
September 2022

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-22-0019, enacted July 5, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv, xvi	xv, xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9
CD5:17—CD5:18.7	CD5:17—CD5:18.7
CD5:171—CD5:176	CD5:171—CD5:176
CD5:191—CD5:251	CD5:191—CD5:257
	VOLUME II
CCT:31, CCT:32	CCT:31—CCT:33
	VOLUME III
CD21:255—CD21:258	CD21:255—CD21:258

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 36
VOLUMES I , II AND III
June 2022

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-22-0012, enacted March 15, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv—xxvii	xv—xxvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9
CD5:9, CD5:10	CD5:9, CD5:10
CD5:74.5—CD5:74.16	CD5:74.5—CD5:74.16
CD5:139—CD5:140.8	CD5:139—CD5:140.9
CD8:147—CD8:158	CD8:147—CD8:158.1
CD10:10.1	CD10:10.1
CD10:103	CD10:103—CD10:105
	VOLUME II
Title page	Title page
CCT:31, CCT:32	CCT:31, CCT:32
	VOLUME III
Title page	Title page
CD21:8.1—CD21:12.2	CD21:9—CD21:12.2
CD21:37—CD21:38.5	CD21:37—CD21:38.5
CD21:93, CD21:94	CD21:93—CD21:94.1
CD21:147—CD21:150.2	CD21:147—CD21:150.2
CD21:467—CD21:480	CD21:467—CD21:480

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 35
VOLUMES I , II AND III
March 2022

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-22-003(Emerg.), enacted February 8, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Title page	Title page
v, vi	v, vi
xi, xii	xi, xii
xvii—xxvii	xvii—xxvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9
CD1:1, CD1:2	CD1:1, CD1:2
CD1:9—CD1:10.2	CD1:9—CD1:10.2
CD1:23—CD1:32	CD1:23—CD1:31
CD2:5, CD2:6	CD2:5, CD2:6
CD2:45—CD2:48.2	CD2:45—CD2:48.2
CD2:75—CD2:80.4	CD2:75—CD2:80.4
CD8:7—CD8:10	CD8:7—CD8:10
CD8:65—CD8:84	CD8:65—CD8:84.12
CD8:155—CD8:163	CD8:155—CD8:163
	VOLUME II
CD18:17—CD18:20.1	CD18:17—CD18:20.1
CD18:225—CD18:228	CD18:225—CD18:228.1
CCT:29—CCT:31	CCT:29—CCT:32
	VOLUME III
CD21:23—CD21:26.1	CD21:23—CD21:26.1
CD21:163—CD21:164.1	CD21:163—CD21:164.1
CD21:179, CD21:180	CD21:179, CD21:180
CD21:219—CD21:222.1	CD21:219—CD21:222.1

Remove Old Pages	*Insert New Pages*
CD21:241, CD21:242	CD21:241, CD21:242
CD21:249, CD21:250	CD21:249, CD21:250
CD21:307—CD21:308.2	CD21:307—CD21:308.3
CD21:364.3—CD21:364.6	CD21:364.3—CD21:364.6
CD21:449—CD21:454	CD21:449—CD21:454

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 34
VOLUMES I , II AND III
December 2021

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-21-0035, enacted October 5, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xxi—xxvi	xxi—xxvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7, SH:8	SH:7—SH:9
CD8:161—CD8:163	CD8:161—CD8:163
CD10:17—CD10:32.1	CD10:17—CD10:32.1
	VOLUME II
CD18:79—CD18:88	CD18:79—CD18:88.1
CD18:97, CD18:98	CD18:97—CD18:98.1
CD18:103—CD18:106	CD18:103—CD18:106.1
CCT:29, CCT:30	CCT:29—CCT:31
	VOLUME III
CD21:32.1, CD21:32.2	CD21:32.1, CD21:32.2
CD21:137—CD21:140	CD21:137—CD21:140.1
CD21:163—CD21:164.1	CD21:163—CD21:164.1
CD21:179, CD21:180	CD21:179, CD21:180
CD21:221, CD21:222	CD21:221—CD21:222.1
CD21:241, CD21:242	CD21:241, CD21:242
CD21:364.3—CD21:364.6	CD21:364.3—CD21:364.6
CD21:479	CD21:479—CD21:486

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 33
VOLUMES I , II AND III
September 2021

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-21-0027, enacted July 20, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv—xxvi	xv—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7, SH:8	SH:7, SH:8
CD5:18.3—CD5:18.6	CD5:18.3—CD5:18.7
CD5:195—CD5:202	CD5:195—CD5:202.1
CD5:211—CD5:214	CD5:211—CD5:214
CD5:223—CD5:247	CD5:223—CD5:251
CD8:13—CD8:16.1	CD8:13—CD8:16.2
CD8:127, CD8:128	CD8:127—CD8:128.2
CD8:155—CD8:162	CD8:155—CD8:163
	VOLUME II
CD16:3, CD16:4	CD16:3, CD16:4
CD16:31, CD16:32	CD16:31, CD16:32
CD18:19, CD18:20	CD18:19—CD18:20.1
CD18:289, CD18:290	CD18:289—CD18:298
CCT:29	CCT:29, CCT:30
	VOLUME III
CD21:261—CD21:264.2	CD21:261—CD21:264.2
CD21:449—CD21:454	CD21:449—CD21:454

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 32
VOLUMES I , II AND III
June 2021

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-21-0014, enacted April 20, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv, xvi	xv, xvi
xxiii—xxvii	xxiii—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7, SH:8	SH:7, SH:8
CD5:18.5—CD5:18.7	CD5:18.5, CD5:18.6
CD5:155—CD5:158.2	CD5:155—CD5:158.4
	VOLUME II
CD5:245—CD5:252	CD5:245—CD5:247
CCT:29	CCT:29
	VOLUME III
CD21:1—CD21:8.1	CD21:1—CD21:8.1
CD21:31—CD21:32.3	CD21:31—CD21:32.2
CD21:37, CD21:38	CD21:37—CD21:38.5
CD21:430.1—CD21:448	CD21:431, CD21:432
CD21:467	CD21:467—CD21:479

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 31
VOLUMES I , II AND III
March 2021

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-21-0005(Emerg.), enacted January 19, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
iii	iii
xv—xxvi	xv—xxvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7, SH:8	SH:7, SH:8
CD3:140.1—CD3:144	CD3:141—CD3:144.1
CD5:14.1—CD5:18.5	CD5:15—CD5:18.7
CD5:139—CD5:140.7	CD5:139—CD5:140.8
CD5:191, CD5:192	CD5:191—CD5:192.4
	CD5:251, CD5:252
CD8:16.1	CD8:16.1
CD8:153—CD8:159	CD8:153—CD8:162
	VOLUME II
CD16:13, CD16:14	CD16:13—CD16:14.1
CD16:174.1—CD16:182	CD16:175—CD16:186
CCT:27, CCT:28	CCT:27—CCT:29
	VOLUME III
CD21:7, CD21:8	CD21:7—CD21:8.1
CD21:25, CD21:26	CD21:25—CD21:26.1
CD21:32.3	CD21:32.3
CD21:74.1—CD21:76.1	CD21:75—CD21:76.1
CD21:348.1—CD21:348.3	CD21:348.1—CD21:348.5
CD21:465	CD21:465—CD21:467
	CD22:1—CD22:45

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 30
VOLUMES I , II AND III
November 2020

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-20-0042, enacted October 20, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xix, xx	xix, xx
xxv, xxvi	xxv, xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7, SH:8
CD5:183, CD5:184	CD5:183, CD5:184
CD5:224.1	CD5:224.1
CD10:10.1	CD10:10.1
CD10:103	CD10:103
	VOLUME II
CD16:13, CD16:14	CD16:13, CD16:14
CD16:174.3	CD16:174.3
CCT:25—CCT:28	CCT:25—CCT:28
	VOLUME III
CD21:32.1, CD21:32.2	CD21:32.1—CD21:32.3
CD21:207—CD21:220	CD21:207—CD21:220
CD21:240.1—CD21:240.4	CD21:240.1—CD21:240.4
CD21:273—CD21:276	CD21:273—CD21:276
CD21:461	CD21:461—CD21:465

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 29
VOLUMES I , II AND III
September 2020

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-20-0031, enacted August 18, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xxvi	xi—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7
CD2:29, CD2:30	CD2:29—CD2:30.1
CD2:38.1—CD2:42	CD2:39—CD2:42.1
CD2:52.1—CD2:54	CD2:53—CD2:54.2
CD2:59—CD2:62	CD2:59—CD2:62
CD2:73, CD2:74	CD2:73, CD2:74
CD3:13—CD3:18	CD3:13—CD3:18
CD3:117—CD3:120	CD3:117—CD3:120.5
CD5:7—CD5:14	CD5:7—CD5:14.2
CD5:74.5—CD5:74.10	CD5:74.5—CD5:74.16
CD5:139, CD5:140	CD5:139—CD5:140.7
CD8:16.1	CD8:16.1
CD8:151—CD8:154	CD8:151—CD8:159
CD10:5—CD10:10	CD10:5—CD10:10.1
CD10:55—CD10:58	CD10:55—CD10:58
CD10:71, CD10:72	CD10:71—CD10:72.1
CD10:101, CD10:102	CD10:101—CD10:103
	VOLUME II
CD20:17—CD20:22	CD20:17—CD20:22.1
CCT:25, CCT:26	CCT:25—CCT:28
	VOLUME III
CD21:4.1—CD21:12.2	CD21:5—CD21:12.2

Remove Old Pages	*Insert New Pages*
CD21:17, CD21:18	CD21:17, CD21:18
CD21:21—CD21:32.2	CD21:21—CD21:32.2
CD21:58.1—CD21:60	CD21:59—CD21:60.2
CD21:71—CD21:74.1	CD21:71—CD21:74.1
CD21:87—CD21:102.4	CD21:87—CD21:102.6
CD21:115—CD21:124	CD21:115—CD21:124.1
CD21:145—CD21:150.1	CD21:145—CD21:150.2
CD21:175—CD21:182	CD21:175—CD21:182.1
CD21:195—CD21:198	CD21:195—CD21:198
CD21:205—CD21:240	CD21:205—CD21:240.4
CD21:247—CD21:250	CD21:247—CD21:250
CD21:261—CD21:264.1	CD21:261—CD2:264:3
CD21:273—CD21:278.1	CD21:273—CD21:278.1
CD21:338.23—CD21:342	CD21:339—CD21:342.4
CD21:364.5	CD21:364.5, CD21:364.6
CD21:378.1—CD21:390	CD21:379—CD21:390.2
CD21:395, CD21:396	CD21:395—CD21:396.2
CD21:411, CD21:412	CD21:411—CD21:412.1
CD21:417—CD21:430.8	CD21:417—CD21:430.3

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 28
VOLUMES I , II AND III
June 2020

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-20-0012, enacted April 21, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
iii	iii
xvii—xxvi	xvii—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7
CD2:1, CD2:2	CD2:1, CD2:2
CD2:19—CD2:22	CD2:19—CD2:22
CD5:18.1, CD5:18.2	CD5:18.1, CD5:18.2
CD5:223, CD5:224	CD5:223—CD5:224.1
CD8:1—CD8:2.1	CD8:1—CD8:2.1
CD8:12.1—CD8:16	CD8:13—CD8:16.1
CD8:21—CD8:22.1	CD8:21—CD8:22.2
CD8:93—CD8:94.4	CD8:93—CD8:94.5
CD8:147, CD8:148	CD8:147—CD8:154
	VOLUME II
CCT:25	CCT:25, CCT:26
CDi:27, CDi:28	CDi:27—CDi:28.1
CDi:35, CDi:36	CDi:35—CDi:36.1
CDi:89, CDi:90	CDi:89—CDi:90.1
	VOLUME III
CD21:3, CD21:4	CD21:3—CD21:4.1
CD21:49, CD21:50	CD21:49—CD21:50.1
CD21:231—CD21:240	CD21:231—CD21:240

Insert and maintain this instruction sheet in front of Volume I. File removed pages for

reference.

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 27
VOLUMES I , II AND III
April 2020

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-20-0004, enacted January 21, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xiii—xxvi	xiii—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7
CD3:17—CD3:19	CD3:17—CD3:19
CD3:149—CD3:152	CD3:149—CD3:152.2
CD3:159—CD3:162	CD3:159—CD3:162
CD5:9—CD5:10.1	CD5:9—CD5:10.1
CD5:18.5	CD5:18.5
CD5:74.7, CD5:74.8	CD5:74.7—CD5:74.10
CD5:117—CD5:120	CD5:117—CD5:120.1
CD5:245, CD5:246	CD5:245—CD5:250
CD8:7, CD8:8	CD8:7, CD8:8
CD8:15, CD8:16	CD8:15, CD8:16
CD8:55, CD8:56	CD8:55, CD8:56
CD8:65—CD8:70	CD8:65, CD8:66
CD8:102.1—CD8:110.3	CD8:103—CD8:110.4
CD8:145—CD8:148	CD8:145—CD8:148
CD9:1, CD9:2	CD9:1, CD9:2
CD9:12.5—CD9:14	CD9:13—CD9:14.1
CD9:23, CD9:24	CD9:23, CD9:24
CD14:3—CD14:16	CD14:3—CD14:16.4
CD14:33—CD14:36	CD14:33—CD14:38
	VOLUME II
CD18:1—CD18:284	CD18:1—CD18:290

Remove Old Pages	*Insert New Pages*
CCT:21, CCT:22	CCT:21—CCT:25
CDi:10.1—CDi:16	CDi:11—CDi:16.1
CDi:29—CDi:32.1	CDi:29—CDi:32.1
CDi:35—CDi:44	CDi:35—CDi:44
CDi:46.1—CDi:48.1	CDi:47—CDi:48.1
CDi:57—CDi:62	CDi:57—CDi:62.1
CDi:68.1—CDi:70	CDi:69—CDi:70.1
CDi:75—CDi:76.1	CDi:75—CDi:76.1
CDi:82.1—CDi:84	CDi:83—CDi:84.1
CDi:88.1—CDi:92.1	CDi:89—CDi:92.1
	VOLUME III
CD21:1—CD21:12.1	CD21:1—CD21:12.2
CD21:17—CD21:20	CD21:17—CD21:20
CD21:25—CD21:32.2	CD21:25—CD21:32.2
CD21:43—CD21:44.2	CD21:43—CD21:44.3
CD21:55, CD21:56	CD21:55, CD21:56
CD21:62.1—CD21:64	CD21:63—CD21:64.1
CD21:73—CD21:74.1	CD21:73—CD21:74.1
CD21:102.3, CD21:102.4	CD21:102.3, CD21:102.4
CD21:120.1—CD21:122	CD21:121—CD21:122.1
CD21:145, CD21:146	CD21:145, CD21:146
CD21:162.1—CD21:164	CD21:163—CD21:164.1
CD21:189—CD21:192	CD21:189—CD21:192
CD21:197—CD21:200.1	CD21:197—CD21:200.1
CD21:209—CD21:214.4	CD21:209—CD21:214.7
CD21:218.1—CD21:226	CD21:219—CD21:226.1
CD21:238.1—CD21:242	CD21:239—CD21:242.1
CD21:249, CD21:250	CD21:249, CD21:250
CD21:275, CD21:276	CD21:275, CD21:276
CD21:303—CD21:308	CD21:303—CD21:308.2
CD21:325—CD21:328	CD21:325—CD21:328
CD21:338.1, CD21:338.2	CD21:338.1—CD21:338.2.1
CD21:338.15—CD21:338.22	CD21:338.15—CD21:338.24
CD21:342.1—CD21:348.2	CD21:343—CD21:348.3
CD21:364.1—CD21:364.5	CD21:364.1—CD21:364.5
CD21:392.1, CD21:392.2	CD21:392.1, CD21:392.2
CDZi:3—CDZi:6	CDZi:3—CDZi:6.1
CDZi:11—CDZi:14.1	CDZi:11—CDZi:14.1

Remove Old Pages	*Insert New Pages*
CDZi:21, CDZi:22	CDZi:21, CDZi:22
CDZi:35—CDZi:36.1	CDZi:35—CDZi:36.1
CDZi:45—CDZi:48	CDZi:45—CDZi:48

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 26
VOLUMES I , II AND III
December 2019

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-19-0027, enacted October 15, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xxi, xxii	xxi, xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5—SH:7
CD2:23—CD2:26.1	CD2:23—CD2:26.1
CD10:31—CD10:32.1	CD10:31—CD10:32.1
	VOLUME II
CD16:13, CD16:14	CD16:13, CD16:14
CD16:174.1, CD16:174.2	CD16:174.1—CD16:174.3
CCT:21, CCT:22	CCT:21, CCT:22
CDi:3, CDi:4	CDi:3—CDi:4.1
CDi:10.1	CDi:10.1
CDi:35, CDi:36	CDi:35—CDi:36.1
CDi:41—CDi:46	CDi:41—CDi:46.1
CDi:66.1—CDi:68	CDi:67—CDi:68.1
	VOLUME III
CD21:289—CD21:292	CD21:289—CD21:292

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 25
VOLUMES I, II AND III
October 2019

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-19-0017, enacted August 20, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xvii, xviii	xvii—xviii.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
CD8:15, CD8:16	CD8:15, CD8:16
CD8:145, CD8:146	CD8:145—CD8:148
	VOLUME II
CCT:21, CCT:22	CCT:21, CCT:22
CDi:47—CDi:48.1	CDi:47—CDi:48.1
CDi:89—CDi:92	CDi:89—CDi:92.1
	VOLUME III
CD21:3, CD21:4	CD21:3—CD21:4.1
CD21:25, CD21:26	CD21:25, CD21:26
CD21:56.3—CD21:58	CD21:57—CD21:58.2
CD21:207—CD21:214.4	CD21:207—CD21:214.4
CD21:233—CD21:238.2	CD21:233—CD21:238.2
CD21:338.16.1—CD21:338.20	CD21:338.17—CD21:338.22
CDZi:12.1—CDZi:14.1	CDZi:13—CDZi:14.1

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 24
VOLUMES I , II AND III
July 2019

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-19-0013, enacted May 21, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv, xvi	xv, xvi
xix, xx	xix, xx
xxiii—xxvi	xxiii—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
CD5:74.5—CD5:74.8	CD5:74.5—CD5:74.8
CD10:9, CD10:10	CD10:9, CD10:10
CD10:97, CD10:98	CD10:97—CD10:102
	VOLUME II
CCT:21	CCT:21, CCT:22
CDi:47—CDi:48.1	CDi:47—CDi:48.1
CDi:79—CDi:82	CDi:79—CDi:82.1
CDi:95—CDi:98.1	CDi:95—CDi:98.1
	VOLUME III
CD21:15—CD21:18	CD21:15—CD21:18.1
CD21:27—CD21:32.2	CD21:27—CD21:32.2
CD21:56.1—CD21:56.3	CD21:56.1—CD21:56.4
CD21:102.1, CD21:102.2	CD21:102.1, CD21:102.2
CD21:123—CD21:128	CD21:123—CD21:128.1
CD21:147—CD21:150.1	CD21:147—CD21:150.1
CD21:161, CD21:162	CD21:161—CD21:162.1
CD21:189—CD21:192	CD21:189—CD21:192
CD21:197—CD21:200.1	CD21:197—CD21:200.1
CD21:211, CD21:212	CD21:211, CD21:212
CD21:223, CD21:224	CD21:223—CD21:224.1
CD21:269, CD21:270	CD21:269, CD21:270
CD21:273—CD21:278	CD21:273—CD21:278.1
CD21:289, CD21:290	CD21:289, CD21:290
CD21:299, CD21:300	CD21:299, CD21:300

Remove Old Pages	*Insert New Pages*
CD21:305—CD21:306.1	CD21:305—CD21:306.2
CD21:363—CD21:364.6	CD21:363—CD21:364.5
CD21:387—CD21:392	CD21:387—CD21:392
CDZi:9—CDZi:12.1	CDZi:9—CDZi:12.1
CDZi:27—CDZi:30.1	CDZi:27—CDZi:30.1
CDZi:37, CDZi:38	CDZi:37, CDZi:38

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 23
VOLUMES I , II AND III
March 2019

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-19-0001, enacted January 8, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xxvi	xi—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
CD1:1—CD1:3	CD1:1—CD1:4
CD1:9, CD1:10	CD1:9—CD1:10.2
CD2:1, CD2:2	CD2:1, CD2:2
CD2:13, CD2:14	CD2:13, CD2:14
CD2:19, CD2:20	CD2:19, CD2:20
CD5:7—CD5:10	CD5:7—CD5:10.1
CD5:72.1—CD5:74	CD5:73—CD5:74.8
CD8:10.1—CD8:12	CD8:11—CD8:12.1
CD8:94.5—CD8:102.1	CD8:95—CD8:102.2
CD10:55—CD10:58.1	CD10:55—CD10:58.1
CD14:1—CD14:4	CD14:1—CD14:4.1
CD14:14.1—CD14:20.1	CD14:15—CD14:20.8
	VOLUME II
CCT:19, CCT:20	CCT:19—CCT:21
CDi:19, CDi:20	CDi:19, CDi:20
CDi:27—CDi:32	CDi:27—CDi:32.1
CDi:46.1—CDi:48	CDi:47—CDi:48.1
CDi:65, CDi:66	CDi:65—CDi:66.1
CDi:83—CDi:88.1	CDi:83—CDi:88.1
	VOLUME III
CD21:1—CD21:8.1	CD21:1—CD21:8.1
CD21:27, CD21:28	CD21:27—CD21:28.1
CD21:42.1—CD21:44	CD21:43—CD21:44.2
CD21:50.1—CD21:56.1	CD21:51—CD21:56.3
CD21:60.1—CD21:62.1	CD21:61—CD21:62.1
CD21:71, CD21:72	CD21:71, CD21:72

Remove Old Pages	*Insert New Pages*
CD21:80.1—CD21:88	CD21:81—CD21:88.1
CD21:99, CD21:100	CD21:99, CD21:100
CD21:135—CD21:136.1	CD21:135—CD21:136.1
CD21:202.5—CD21:214.1	CD21:203—CD21:214.4
CD21:367—CD21:378.1	CD21:367—CD21:378.1
CDZi:2.1—CDZi:12	CDZi:3—CDZi:12.1
CDZi:17, CDZi:18	CDZi:17, CDZi:18
CDZi:23, CDZi:24	CDZi:23, CDZi:24
CDZi:34.1—CDZi:36	CDZi:35—CDZi:36.1

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 22
VOLUMES I , II AND III
December 2018

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-18-0027, enacted October 9, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xix—xxiv	xix—xxiv.1
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
CD10:4.1—CD10:10	CD10:5—CD10:10
CD10:87—CD10:88.2	CD10:87—CD10:88.2
	VOLUME II
CD18:25, CD18:26	CD18:25, CD18:26
CD18:105, CD18:106	CD18:105, CD18:106
CCT:19, CCT:20	CCT:19, CCT:20
CDi:9, CDi:10	CDi:9—CDi:10.1
	VOLUME III
CD21:5—CD21:8.1	CD21:5—CD21:8.1
CD21:15, CD21:16	CD21:15—CD21:16.1
CD21:27—CD21:30	CD21:27—CD21:30.1
CD21:73, CD21:74	CD21:73—CD21:74.1
CD21:79—CD21:80.1	CD21:79—CD21:80.1
CD21:87—CD21:90	CD21:87—CD21:90
CD21:102.1, CD21:102.2	CD21:102.1, CD21:102.2
CD21:117—CD21:120	CD21:117—CD21:120.1
CD21:148.1—CD21:150	CD21:149—CD21:150.1
CD21:177—CD21:180	CD21:177—CD21:180
CD21:204.1—CD21:214	CD21:205—CD21:214.1
CD21:366.3—CD21:368	CD21:366.3—CD21:367
CD21:381—CD21:392	CD21:381—CD21:392.2
CDZi:3, CDZi:4	CDZi:3—CDZi:4.1
CDZi:9—CDZi:12	CDZi:9—CDZi:12
CDZi:23—CDZi:28	CDZi:23—CDZi:28.1
CDZi:43, CDZi:44	CDZi:43, CDZi:44

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 21
VOLUMES I , II AND III
October 2018

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-18-0021, enacted August 14, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xxv	xi—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5, SH:6
CD2:3—CD2:12	CD2:3—CD2:11
CD2:37, CD2:38	CD2:37—CD2:38.1
CD2:51—CD2:52.1	CD2:51—CD2:52.2
CD5:5—CD5:10	CD5:5—CD5:10
CD5:17, CD5:18	CD5:17—CD5:18.5
CD5:72.3—CD5:84	CD5:73—CD5:84
CD5:191, CD5:192	CD5:191—CD5:246
CD8:9, CD8:10	CD8:9—CD8:10.1
CD8:93, CD8:94	CD8:93—CD8:94.5
CD10:11, CD10:12	CD10:11—CD10:12.1
CD10:53, CD10:54	CD10:53, CD10:54
CD14:1—CD14:6	CD14:1—CD14:6.2
	VOLUME II
CD15:3—CD15:7	CD15:3—CD15:7
CD15:25, CD15:26	CD15:25—CD15:26.22
CD15:75, CD15:76	CD15:75, CD15:76
CCT:19	CCT:19, CCT:20
CDi:19—CDi:22	CDi:19—CDi:22.3
CDi:29, CDi:30	CDi:29, CDi:30
CDi:57—CDi:58.1	CDi:57, CDi:58
CDi:67—CDi:76	CDi:67—CDi:76.1
CDi:87—CDi:88.1	CDi:87—CDi:88.1
CDi:101, CDi:102	CDi:101, CDi:102
	VOLUME III
CD21:1—CD21:8.1	CD21:1—CD21:8.1
CD21:17, CD21:18	CD21:17, CD21:18

Remove Old Pages	*Insert New Pages*
CD21:25—CD21:32.1	CD21:25—CD21:32.2
CD21:40.1—CD21:42.1	CD21:41—CD21:42.2
CD21:49—CD21:50.1	CD21:49—CD21:50.1
CD21:75—CD21:76.1	CD21:75—CD21:76.1
CD21:102.1, CD21:102.2	CD21:102.1, CD21:102.2
CD21:177—CD21:180	CD21:177—CD21:180
CD21:202.7—CD21:204	CD21:203—CD21:204.1
CD21:209—CD21:218	CD21:209—CD21:218
CD21:227, CD21:228	CD21:227, CD21:228
CD21:231, CD21:232	CD21:231, CD21:232
CD21:235—CD21:238.2	CD21:235—CD21:238.2
CD21:245—CD21:256	CD21:245—CD21:256.1
CD21:341, CD21:342	CD21:341—CD21:342.2
CD21:361, CD21:362	CD21:361, CD21:362
CD21:366.1—CD21:366.3	CD21:366.1—CD21:366.3
CD21:389, CD21:390	CD21:389, CD21:390
CD21:409—CD21:430.2	CD21:409—CD21:424
CDZi:1—CDZi:2.1	CDZi:1—CDZi:2.1
CDZi:7—CDZi:8.1	CDZi:7—CDZi:8.1
CDZi:25—CDZi:30	CDZi:25—CDZi:30.1
CDZi:43—CDZi:47	CDZi:43—CDZi:48

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 20
VOLUMES I , II AND III
June 2018

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-18-0009, enacted April 17, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xix, xx	xix, xx
xxv	xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
CD14:3, CD14:4	CD14:3, CD14:4
CD14:19, CD14:20	CD14:19—CD14:20.1
	VOLUME II
CD16:13, CD16:14	CD16:13, CD16:14
CD16:174.1, CD16:174.2	CD16:174.1, CD16:174.2
CCT:17, CCT:18	CCT:17—CCT:19
CDi:45—CDi:46.1	CDi:45—CDi:46.1
CDi:87, CDi:88	CDi:87—CDi:88.1
	VOLUME III
CD21:11, CD21:12	CD21:11, CD21:12
CD21:27—CD21:28.1	CD21:27—CD21:28.1
CD21:102.3, CD21:102.4	CD21:102.3, CD21:102.4
CD21:211—CD21:214	CD21:211—CD21:214
CD21:247—CD21:250	CD21:247—CD21:250.1
CD21:364.7—CD21:366	CD21:365—CD21:366.3
CDZi:13, CDZi:14	CDZi:13—CDZi:14.1

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 19
VOLUMES I , II AND III
April 2018

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-18-0002, enacted January 23, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi, xii	xi, xii
xv—xiv.1	xv—xiv.1
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
CD1:15—CD1:18.1	CD1:15—CD1:18.1
CD8:1, CD8:2	CD8:1—CD8:2.1
CD8:21, CD8:22	CD8:21—CD8:22.1
CD12:1, CD12:2	CD12:1, CD12:2
CD12:13, CD12:14	CD12:13—CD12:14.1
CD12:19, CD12:20	CD12:19—CD12:20.1
	VOLUME II
CCT:17, CCT:18	CCT:17, CCT:18
CDi:19, CDi:20	CDi:19—CDi:20.1
CDi:51, CDi:52	CDi:51, CDi:52
	VOLUME III
CD21:1—CD21:8	CD21:1—CD21:8.1
CD21:27—CD21:28.1	CD21:27—CD21:28.1
CD21:38.1—CD21:40	CD21:39—CD21:40.1
CD21:49, CD21:50	CD21:49—CD21:50.1
CD21:59, CD21:60	CD21:59—CD21:60.1
CD21:75, CD21:76	CD21:75—CD21:76.1
CD21:83, CD21:84	CD21:83—CD21:84.1
CD21:89—CD21:90.1	CD21:89—CD21:90.1
CD21:147, CD21:148	CD21:147—CD21:148.1
CD21:177—CD21:180	CD21:177—CD21:180
CD21:202.5, CD21:202.6	CD21:202.5, CD21:202.6
CD21:279—CD21:282	CD21:279—CD21:282
CD21:353—CD21:356	CD21:353—CD21:356
CD21:362.1—CD21:364	CD21:363—CD21:364.7

Remove Old Pages	*Insert New Pages*
CDZi:1, CDZi:2	CDZi:1—CDZi:2.1
CDZi:7, CDZi:8	CDZi:7—CDZi:8.1
CDZi:15, CDZi:16	CDZi:15, CDZi:16
CDZi:33, CDZi:34	CDZi:33—CDZi:34.1

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 18
VOLUMES I , II AND II
January 2018

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-17-0026, enacted October 10, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv, xvi	xv—xvi.1
xix—xxv	xix—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
CD5:17, CD5:18	CD5:17, CD5:18
CD5:191	CD5:191, CD5:192
CD8:11—CD8:15	CD8:11—CD8:16
CD8:109, CD8:110	CD8:109—CD8:110.3
CD10:3—CD10:4.1	CD10:3—CD10:4.1
CD10:47—CD10:50	CD10:47—CD10:50.3
CD10:67—CD10:68.1	CD10:67—CD10:68.1
	VOLUME II
CD16:13, CD16:14	CD16:13, CD16:14
CD16:174.1	CD16:174.1, CD16:174.2
CD18:7, CD18:8	CD18:7—CD18:8.1
CD18:129, CD18:130	CD18:129—CD18:130.3
CCT:17	CCT:17, CCT:18
CDi:45, CDi:46	CDi:45—CDi:46.1
CDi:57—CDi:58.1	CDi:57—CDi:58.1
CDi:63, CDi:64	CDi:63, CDi:64
CDi:71, CDi:72	CDi:71—CDi:72.1
CDi:95—CDi:98	CDi:95—CDi:98.1
	VOLUME III
CD21:11—CD21:12.1	CD21:11—CD21:12.1
CD21:26.1—CD21:28	CD21:27—CD21:28.1
CD21:102.3, CD21:102.4	CD21:102.3, CD21:102.4
CD21:177—CD21:180	CD21:177—CD21:180.1
CD21:207, CD21:208	CD21:207, CD21:208
CD21:213, CD21:214	CD21:213, CD21:214

Remove Old Pages	*Insert New Pages*
CD21:217, CD21:218	CD21:217, CD21:218
CD21:231, CD21:232	CD21:231, CD21:232
CD21:238.1, CD21:238.2	CD21:238.1, CD21:238.2
CD21:261—CD21:264.1	CD21:261—CD21:264.1
CD21:385, CD21:386	CD21:385—CD21:386.1
CDZi:1, CDZi:2	CDZi:1, CDZi:2
CDZi:45, CDZi:46	CDZi:45—CDZi:46.1

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 17
VOLUMES I , II AND II
September 2017

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-17-0011, enacted July 11, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
iii	iii
xiii, xiv	xiii, xiv
xxv	xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
CD2:1, CD2:2	CD2:1, CD2:2
CD2:15—CD2:18	CD2:15—CD2:18
CD3:147—CD3:150	CD3:147—CD3:150.2
CD5:17, CD5:18	CD5:17, CD5:18
CD5:189	CD5:189—CD5:191
	VOLUME II
CCT:17	CCT:17
CDi:19, CDi:20	CDi:19, CDi:20
CDi:57, CDi:58	CDi:57—CDi:58.1
	VOLUME III
CD21:29—CD21:32	CD21:29—CD21:32
CD21:179—CD21:182	CD21:179—CD21:182
CD21:199, CD21:200	CD21:199—CD21:200.1
CD21:406.5—CD21:430.5	CD21:407—CD21:430.8
CDZi:47	CDZi:47

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 16
VOLUMES I, II AND II
April 2017

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-17-001, enacted February 14, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
iii	iii
xi—xxv	xi—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3—SH:5
CD1:23, CD1:24	CD1:23, CD1:24
CD2:7, CD2:8	CD2:7, CD2:8
CD2:61—CD2:62.1	CD2:61, CD2:62
CD3:17, CD3:18	CD3:17, CD3:18
CD3:147—CD3:150.4	CD3:147—CD3:150
CD3:161, CD3:162	CD3:161, CD3:162
CD5:17	CD5:17, CD5:18
CD5:169—CD5:173	CD5:169—CD5:189
CD8:100.1—CD8:102	CD8:101—CD8:102.1
CD8:109, CD8:110	CD8:109, CD8:110
CD10:81—CD10:84	CD10:81—CD10:84
CD12:1—CD12:50	CD12:1—CD12:5
	CD12:7—CD12:49
CD16:174.1	CD16:174.1
CD18:1—CD18:19	CD18:1—CD18:19
CD18:21—CD18:273	CD18:21—CD18:284
CCT:15	CCT:15—CCT:17
CDi:1—CDi:103	CDi:1—CDi:102
CD21:1—CD21:2.1	CD21:1—CD21:2.1
CD21:20.1—CD21:26.1	CD21:21—CD21:26.1
CD21:37, CD21:38	CD21:37—CD21:38.1
CD21:47, CD21:48	CD21:47, CD21:48
CD21:54.1—CD21:56	CD21:55—CD21:56.1
CD21:85—CD21:90	CD21:85—CD21:90.1
CD21:123, CD21:124	CD21:123, CD21:124

Remove Old Pages	*Insert New Pages*
CD21:189—CD21:192	CD21:189—CD21:192
CD21:273—CD21:280	CD21:273—CD21:280.1
CD21:299—CD21:306	CD21:299—CD21:306.1
CD21:338.13—CD21:338.16	CD21:338.13—CD21:338.16.2
CDZi:1—CDZi:48	CDZi:1—CDZi:47

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 15
VOLUMES I AND II
November 2016

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-16-0023, enacted October 11, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xix, xx	xix, xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD14:11—CD14:14.2	CD14:11—CD14:14.2
CD16:3, CD16:4	CD16:3, CD16:4
CD16:23, CD16:24	CD16:23, CD16:24
CD16:37, CD16:38	CD16:37—CD16:38.1
CCT:15	CCT:15
CDi:53, CDi:54	CDi:53—CDi:54.1

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 14
VOLUMES I, II AND III
September 2016

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-16-0016, enacted July 12, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Title page	Title page
xi—xiv	xi—xiv.1
xxiii—xxv	xxiii—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD2:9—CD2:11	CD2:9—CD2:12
CD2:79—CD2:80.3	CD2:79—CD2:80.4
CD3:13—CD3:19	CD3:13—CD3:19
CD3:117, CD3:118	CD3:117—CD3:118.4
CD3:163	CD3:163—CD3:165
CD9:7	CD9:7
CD9:43—CD9:46	CD9:43—CD9:45
CD10:65—CD10:68.1	CD10:65—CD10:68.1
	VOLUME II
Title page	Title page
CD16:13, CD16:14	CD16:13, CD16:14
CD16:174.1	CD16:174.1
CCT:15	CCT:15
CDi:11—CDi:14	CDi:11—CDi:14
CDi:27—CDi:30	CDi:27—CDi:30
CDi:45—CDi:48	CDi:45—CDi:48
CDi:95, CDi:96	CDi:95—CDi:96.1
	VOLUME III
Title page	Title page
CD21:13, CD21:14	CD21:13, CD21:14
CD21:18.1—CD21:20	CD21:19—CD21:20.1
CD21:117, CD21:118	CD21:117, CD21:118
CD21:143, CD21:144	CD21:143, CD21:144
CD21:177—CD21:180	CD21:177—CD21:180

Remove Old Pages	*Insert New Pages*
CD21:261—CD21:264	CD21:261—CD21:264.1
CD21:399—CD21:406.2	CD21:399—CD21:406.2
CDZi:1—CDZi:2.1	CDZi:1—CDZi:2.1
CDZi:13—CDZi:16.1	CDZi:13—CDZi:16.1
CDZi:29—CDZi:32.1	CDZi:29—CDZi:32.1
CDZi:41—CDZi:42.1	CDZi:41—CDZi:42.1

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 13
VOLUMES I AND II
June 2016

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-16-0006, enacted April 19, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xxii	xi—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD1:15—CD1:18	CD1:15—CD1:18.1
CD2:7—CD2:11	CD2:7—CD2:11
CD2:51, CD2:52	CD2:51—CD2:52.1
CD10:7—CD10:10	CD10:7—CD10:10
CD10:87, CD10:88	CD10:87—CD10:88.2
	VOLUME II
CD16:13, CD16:14	CD16:13, CD16:14
CD16:173, CD16:174	CD16:173—CD16:174.1
CCT:15	CCT:15
CDi:33, CDi:34	CDi:33—CDi:34.1
CDi:45—CDi:48	CDi:45—CDi:48
CDi:92.1—CDi:94	CDi:93—CDi:94.1
CDi:99—CDi:100.1	CDi:99—CDi:100.1

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 12
VOLUMES I, II AND III
March 2016

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-16-0001, enacted January 19, 2016..

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xxiv	xi—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD2:7—CD2:11	CD2:7—CD2:11
CD2:51—CD2:62	CD2:51—CD2:62.1
CD2:79—CD2:80.1	CD2:79—CD2:80.3
CD8:15	CD8:15
CD8:137	CD8:137—CD8:146
CD9:39, CD9:40	CD9:39, CD9:40
CD10:21—CD10:28	CD10:21—CD10:28
CD10:55—CD10:58	CD10:55—CD10:58.1
CD10:67—CD10:68.1	CD10:67—CD10:68.1
	VOLUME II
CD18:8.1—CD18:12	CD18:9—CD18:12.1
CD18:165, CD18:166	CD18:165—CD18:166.1
CCT:13, CCT:14	CCT:13—CCT:15
CDi:27—CDi:30	CDi:27—CDi:30
CDi:35—CDi:38	CDi:35—CDi:38
CDi:71—CDi:74.1	CDi:71—CDi:74.1
CDi:86.1—CDi:88	CDi:87—CDi:88.1
	VOLUME III
CD21:17, CD21:18	CD21:17—CD21:18.1
CD21:169—CD21:180	CD21:169—CD21:180
CD21:201, CD21:202	CD21:201—CD21:202.7
CDZi:31, CDZi:32	CDZi:31—CDZi:32.1

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 11
VOLUMES I AND II
November 2015

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-15-0028, enacted October 13, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xvii—xxv	xvii—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3, SH:4
CD2:5, CD2:6	CD2:5, CD2:6
CD2:41, CD2:42	CD2:41, CD2:42
CD9:1—CD9:7	CD9:1—CD9:7
CD9:12.1, CD9:12.2	CD9:12.1—CD9:12.5
CD10:3, CD10:4	CD10:3—CD10:4.1
CD10:47, CD10:48	CD10:47—CD10:48.1
	VOLUME II
CD15:37, CD15:38	CD15:37—CD15:38.1
CD18:19	CD18:19
CD18:55—CD18:60	CD18:55—CD18:60.1
CD18:271, CD18:272	CD18:271—CD18:273
CCT:13, CCT:14	CCT:13, CCT:14
CDi:5, CDi:6	CDi:5, CDi:6
CDi:13, CDi:14	CDi:13, CDi:14
CDi:43, CDi:44	CDi:43, CDi:44
CDi:65, CDi:66	CDi:65—CDi:66.1
CDi:73, CDi:74	CDi:73—CDi:74.1
CDi:101—CDi:103	CDi:101—CDi:103

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 10
VOLUMES I, II AND III
August 2015

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-15-0019, enacted July 14, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
iii	iii
xv, xvi	xv, xvi
xxi, xxii	xxi, xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD5:15, CD5:16	CD5:15, CD5:16
CD5:155—CD5:158.1	CD5:155—CD5:158.2
CD6:3	CD6:3
CD6:11, CD6:12	CD6:11, CD6:12
CD6:25—CD6:29	CD6:25—CD6:30
CD10:87, CD10:88	CD10:87, CD10:88
	VOLUME II
CD18:7, CD18:8	CD18:7—CD18:8.1
CD18:129, CD18:130	CD18:129—CD18:130.6
CCT:13	CCT:13, CCT:14
CDi:5—CDi:6.1	CDi:5—CDi:6.1
CDi:45—CDi:48	CDi:45—CDi:48
CDi:73—CDi:78	CDi:73—CDi:78.1
CDi:99, CDi:100	CDi:99—CDi:100.1
	VOLUME III
CD21:9—CD21:12	CD21:9—CD21:12.1
CD21:61, CD21:62	CD21:61—CD21:62.1
CD21:95—CD21:102	CD21:95—CD21:102.4
CD21:205, CD21:206	CD21:205, CD21:206
CD21:213—CD21:218	CD21:213—CD21:218
CDZi:40.1—CDZi:42	CDZi:41—CDZi:42.1

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 9
VOLUMES I, II AND III
May 2015

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-15-0011 (Emerg.), enacted April 21, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
iii	iii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD6:1—CD6:3	CD6:1—CD6:3
CD6:11—CD6:14	CD6:11—CD6:14.2
CD6:21, CD6:22	CD6:21, CD6:22
CD10:27, CD10:28	CD10:27, CD10:28
CD10:31—CD10:32.1	CD10:31—CD10:32.1
	VOLUME II
CCT:13	CCT:13
CDi:5, CDi:6	CDi:5—CDi:6.1
	VOLUME III
CD21:1—CD21:2.1	CD21:1—CD21:2.1
CD21:25, CD21:26	CD21:25, CD21:26
CD21:39—CD21:42	CD21:39—CD21:42.1
CD21:203, CD21:204	CD21:203, CD21:204
CD21:213, CD21:214	CD21:213, CD21:214
CD21:238.1	CD21:238.1, CD21:238.2
CD21:273—CD21:276	CD21:273—CD21:276.1
CD21:338.13, CD21:338.14	CD21:338.13—CD21:338.14.2
CDZi:1—CDZi:2.1	CDZi:1—CDZi:2.1
CDZi:13, CDZi:14	CDZi:13, CDZi:14

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 8
VOLUMES I, II AND III
April 2015

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-15-0005, enacted February 3, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
iii	iii
xi—xxv	xi—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD2:1—CD2:6	CD2:1—CD2:6
CD2:15—CD2:20	CD2:15—CD2:20
CD2:43—CD2:46	CD2:43—CD2:46
CD3:17, CD3:18	CD3:17, CD3:18
CD3:29—CD3:32	CD3:29—CD3:32
CD3:149, CD3:150	CD3:149—CD3:150.4
CD5:13, CD5:14	CD5:13, CD5:14
CD5:135, CD5:136	CD5:135—CD5:136.6
CD10:21—CD10:24	CD10:21—CD10:24
CD14:1—CD14:4	CD14:1—CD14:4
CD14:7—CD14:14	CD14:7—CD14:14.2
	VOLUME II
CCT:11—CCT:13	CCT:11—CCT:13
CDi:9, CDi:10	CDi:9, CDi:10
CDi:17—CDi:20	CDi:17—CDi:20
CDi:31—CDi:36	CDi:31—CDi:36
	VOLUME III
CD21:7—CD21:10.1	CD21:7—CD21:10.1
CD21:79, CD21:80	CD21:79—CD21:80.1
CDZi:27, CDZi:28	CDZi:27—CDZi:28.1

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 7
VOLUMES I AND II
December 2014

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-14-0020, enacted November 18, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi, xii	xi—xii.1
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD2:1—CD2:11	CD2:1—CD2:11
CD2:13—CD2:26	CD2:13—CD2:26.1
CD2:47, CD2:48	CD2:47—CD2:48.2
CD10:21—CD10:24	CD10:21—CD10:24
	VOLUME II
CD18:3, CD18:4	CD18:3, CD18:4
CD18:73—CD18:76	CD18:73—CD18:76
CCT:11, CCT:12	CCT:11—CCT:13
CDi:13, CDi:14	CDi:13, CDi:14
CDi:19, CDi:20	CDi:19, CDi:20
CDi:91—CDi:92.1	CDi:91—CDi:92.1

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 6
VOLUMES I, II AND III
October 2014

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-14-0011(Emerg.), enacted August 12, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi, xii	xi, xii
xvii, xviii	xvii, xviii
xxiii, xxiv	xxiii, xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD2:9—CD2:11	CD2:9—CD2:11
CD2:79, CD2:80	CD2:79—CD2:80.1
CD5:7, CD5:8	CD5:7, CD5:8
CD5:67, CD5:68	CD5:67, CD5:68
CD9:1—CD9:7	CD9:1—CD9:7
CD9:9—CD9:12	CD9:9—CD9:12.2
CD10:28.1—CD10:32	CD10:29—CD10:32.1
	VOLUME II
CCT:11, CCT:12	CCT:11, CCT:12
CDi:27—CDi:32	CDi:27—CDi:32
CDi:43, CDi:44	CDi:43, CDi:44
CDi:57, CDi:58	CDi:57—CDi:58.1
CDi:73, CDi:74	CDi:73, CDi:74
	VOLUME III
CD21:29—CD21:32.1	CD21:29—CD21:32.1
CD21:395—CD21:406	CD21:395—CD21:406.7
CDZi:39, CDZi:40	CDZi:39—CDZi:40.1

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 5
VOLUMES I, II AND III
June 2014

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-14-0005(Emerg.), enacted May 20, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
iii	iii
xxiii, xxiv	xxiii, xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1—SH:3	SH:1—SH:3
CD5:15—CD5:17	CD5:15—CD5:17
CD5:71—CD5:72.2	CD5:71—CD5:72.2
CD5:155—CD5:158	CD5:155—CD5:158.1
CD8:11—CD8:15	CD8:11—CD8:15
CD8:95—CD8:100	CD8:95—CD8:100.1
	VOLUME II
CCT:11, CCT:12	CCT:11, CCT:12
CDi:1, CDi:2	CDi:1—CDi:2.1
CDi:77, CDi:78	CDi:77, CDi:78
CDi:85—CDi:86.1	CDi:85—CDi:86.1
CDi:91—CDi:92.1	CDi:91—CDi:92.1
	VOLUME III
CD21:1, CD21:2	CD21:1—CD21:2.1
CD21:25, CD21:26	CD21:25—CD21:26.1
CD21:39, CD21:40	CD21:39—CD21:40.1
CD21:133—CD21:136	CD21:133—CD21:136.1
CD21:345—CD21:348	CD21:345—CD21:348.1
CDZi:1—CDZi:2.1	CDZi:1—CDZi:2.1
CDZi:13, CDZi:14	CDZi:13, CDZi:14

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 4
VOLUMES I, II AND III
March 2014

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-14-0002, enacted February 11, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv—xxv	xv—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1—SH:3
CD5:5, CD5:6	CD5:5, CD5:6
CD5:59—CD5:62	CD5:59, CD5:60
CD5:97, CD5:98	CD5:97, CD5:98
CD9:5—CD9:7	CD9:5—CD9:7
CD9:35, CD9:36	CD9:35—CD9:36.2
CD10:89, CD10:90	CD10:89, CD10:90
	VOLUME II
CD16:13	CD16:13, CD16:14
CD16:175, CD16:176	CD16:175—CD16:182
CCT:11	CCT:11, CCT:12
CDi:3—CDi:8	CDi:3—CDi:8
CDi:19—CDi:22	CDi:19—CDi:22
CDi:34.1—CDi:40	CDi:35—CDi:40
CDi:51, CDi:52	CDi:51, CDi:52
CDi:57, CDi:58	CDi:57, CDi:58
CDi:63, CDi:64	CDi:63, CDi:64
CDi:69—CDi:74	CDi:69—CDi:74
CDi:85, CDi:86	CDi:85—CDi:86.1
CDi:91, CDi:92	CDi:91, CDi:92
	VOLUME III
CD21:7—CD21:10	CD21:7—CD21:10
CD21:81, CD21:82	CD21:81, CD21:82
CD21:89, CD21:90	CD21:89, CD21:90
CD21:209—CD21:218.2	CD21:209—CD21:218.1
CD21:359—CD21:362	CD21:359—CD21:362.1
CDZi:31, CDZi:32	CDZi:31, CDZi:32

Remove Old Pages	*Insert New Pages*
CDZi:37, CDZi:38	CDZi:37, CDZi:38

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 3
VOLUMES I, II AND III
February 2014

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-13-0024, enacted November 12, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xix—xxiv	xix—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
CD1:17—CD1:20	CD1:17—CD1:20
CD5:17	CD5:17
CD5:167—CD5:173	CD5:167—CD5:173
CD8:97, CD8:98	CD8:97, CD8:98
CD10:21—CD10:28	CD10:21—CD10:28.1
	VOLUME II
CD18:1—CD18:19	CD18:1—CD18:19
CD18:21—CD18:286	CD18:21—CD18:272
CCT:1, CCT:2	CCT:1, CCT:2
CCT:9	CCT:9—CCT:11
CDi:11—CDi:14	CDi:11—CDi:14
CDi:25—CDi:30	CDi:25—CDi:30
CDi:35—CDi:48.1	CDi:35—CDi:48
CDi:59, CDi:60	CDi:59, CDi:60
CDi:65—CDi:72	CDi:65—CDi:72
CDi:77, CDi:78	CDi:77, CDi:78
CDi:85, CDi:86	CDi:85, CDi:86
CDi:91, CDi:92	CDi:91—CDi:92.1
CDi:101—CDi:103	CDi:101—CDi:103
	VOLUME III
CD21:1—CD21:10	CD21:1—CD21:10.1
CD21:23—CD21:32.1	CD21:23—CD21:32.1
CD21:47—CD21:54	CD21:47—CD21:54.1
CD21:77—CD21:100	CD21:77—CD21:100.3
CD21:207—CD21:218	CD21:207—CD21:218.2
CD21:235—CD21:238	CD21:235—CD21:238.1

Remove Old Pages	*Insert New Pages*
CD21:247—CD21:250	CD21:247—CD21:250
CD21:307—CD21:338.1	CD21:307—CD21:338.20
CD21:369—CD21:378	CD21:369—CD21:378.1
CD21:461—CD21:470	CD21:461
CDZi:3—CDZi:16.1	CDZi:3—CDZi:16.1
CDZi:27—CDZi:47	CDZi:27—CDZi:48

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 2
VOLUMES I, II AND III
September 2013

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-13-0012, enacted August 13, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv, xvi	xv, xvi
xxiii, xxiv	xxiii, xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
CD5:7—CD5:17	CD5:7—CD5:17
CD5:72.1, CD5:72.2	CD5:72.1—CD5:72.3
CD5:87—CD5:100	CD5:87—CD5:98
CD10:67, CD10:68	CD10:67—CD10:68.1
CD10:93, CD10:94	CD10:93, CD10:94
	VOLUME II
CCT:9	CCT:9
CDi:35, CDi:36	CDi:35—CDi:36.1
CDi:47—CDi:48.1	CDi:47—CDi:48.1
CDi:63—CDi:66	CDi:63—CDi:66
	VOLUME III
CD21:29—CD21:32	CD21:29—CD21:32.1
CD21:207—CD21:210	CD21:207—CD21:210
CD21:213, CD21:214	CD21:213, CD21:214
CD21:429, CD21:430	CD21:429—CD21:430.5
CDZi:1, CDZi:2	CDZi:1—CDZi:2.1

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 1
VOLUMES I, II AND III
May 2013

LONG BEACH MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. ORD-13-0004, enacted April 23, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv, xvi	xv, xvi
	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
CD2:9, CD2:10	CD2:9, CD2:10
CD2:75, CD2:76	CD2:75—CD2:76.1
CD3:137—CD3:140	CD3:137—CD3:140.1
CD5:7—CD5:17	CD5:7—CD5:17
CD5:71, CD5:72	CD5:71—CD5:72.2
CD5:125—CD5:132	CD5:125—CD5:132.3
CD14:25—CD14:28	CD14:25—CD14:28
	VOLUME II
CD15:31, CD15:32	CD15:31—CD15:32.1
CCT:7, CCT:8	CCT:7—CCT:9
CDi:33, CDi:34	CDi:33—CDi:34.1
CDi:47, CDi:48	CDi:47—CDi:48.1
	VOLUME III
CD21:23, CD21:24	CD21:23—CD21:24,1
CD21:41, CD21:42	CD21:41, CD21:42
CD21:235—CD21:238	CD21:235—CD21:238
CD21:337, CD21:338	CD21:337—CD21:338.1
CDZi:13—CDZi:16	CDZi:13—CDZi:16.1

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

LONG BEACH, CALIFORNIA

MUNICIPAL CODE

VOLUME I

A Republication of the General Ordinances of Long Beach, California

---

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

CURRENT

OFFICIALS

of the

CITY OF

LONG BEACH, CALIFORNIA

Dr. Robert Garcia
Mayor

Mary Zendejas, 1st District
Cindy Allen, 2nd District
Suzie A. Price, 3rd District
Daryl Supernaw, 4th District
Stacy Mungo, 5th District
Dr. Suely Saro, 6th District
Roberto Uranga, 7th District
Al Austin, 8th District
Rex Richardson, 9th District
City Council

Charles Parkin
City Attorney

Laura L. Doud
City Auditor

Doug Haubert
City Prosecutor

Thomas B. Modica
City Manager

Monique De La Garza
City Clerk

PREFACE

This Code constitutes a complete republication of the general and permanent ordinances of the City of Long Beach, California.

Page Numbering System

The page numbering system used in this Code is a prefix system. The letters to the left of the colon are an abbreviation which represents a certain portion of the volume. The number to the right of the colon represents the number of the page in that portion. In the case of a title of the Code, the number to the left of the colon indicates the number of the title. The following are typical parts of codes of ordinances, which may or may not appear in this Code at this time, and their corresponding prefixes:

CHARTER COMPARATIVE TABLE	CHTCT:1
RELATED LAWS COMPARATIVE TABLE	RLCT:1
CODE	CD1:1
CODE COMPARATIVE TABLES	CCT:1
STATE LAW REFERENCE TABLE	SLT:1
CODE INDEX	CDi:1

Indexes

The indexes have been prepared with the greatest of care. Each particular item has been placed under several headings, some of which are couched in lay phraseology, others in legal terminology, and still others in language generally used by local government officials and employees. There are numerous cross references within the indexes themselves which stand as guideposts to direct the user to the particular item in which the user is interested.

Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up to date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up to date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

The republication of this Code was under direct supervision of Mary Bennett, Supplement Editor, and Judy Mixon, Accuracy Management Coordinator, of Municode, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to Megan Wiegelman, City Clerk Assistant and Larry Herrera City Clerk, and the other members of the City staff for their cooperation and assistance during the progress of

the work on this republication. It is hoped that their efforts and those of the publisher have resulted in a Code of Ordinances which will make the active law of the City readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the City's affairs.

Copyright

All editorial enhancements of this Code are copyrighted by Municode and the City of Long Beach, California. Editorial enhancements include, but are not limited to: organization; table of contents; section catchlines; prechapter section analyses; editor's notes; cross references; state law references; numbering system; code comparative table; state law reference table; and index. Such material may not be used or reproduced for commercial purposes without the express written consent of Municode and the City of Long Beach, California.

© Copyrighted material.

Municode and the City of Long Beach, California, 2013.

Municode
1700 Capital Circle SW
Tallahassee, FL 32310
800-262-2633

TABLE OF CONTENTS

Page

Current Officials iii
Preface v
Adopting Ordinance (Reserved) vii
Checklist of Up-to-Date Pages ..... [1]
Supplement History Table SH:1

VOLUME I

Title

Title 1. General Provisions CD1:1
1.04. Code Adoption CD1:5
1.08. General Provisions CD1:7
1.12. City Seal CD1:9
1.14. Flag Protocols CD1:10
1.15. Municipal Elections CD1:11
Div. I. General Provisions CD1:11
Div. II. Election Procedures CD1:12
Div. III. Referenda and Initiative CD1:12.1
Subd I. Referenda and Initiative Generally CD1:12.1
Subd II. Campaign Disclosure Statements—Measure Committees CD1:12.1
Div. IV. Voter's Pamphlet CD1:12.3
Div. V. Candidates CD1:12.5
Div. VI. Electronic Campaign Disclosure Statements CD1:12.7
1.16. Datum Plane CD1:12.7
1.20. Political Districts CD1:12.7
1.21, 1.22. Reserved CD1:19
1.24—1.26. Reserved CD1:19
1.27. School Board Districts CD1:20
1.28. Record Retention CD1:21
1.32. General Penalty CD1:22
Title 2. Administration and Personnel CD2:1
2.01. The Long Beach Campaign Reform Act CD2:13
Div. I. Title, Findings and Purpose CD2:13
Div. II. Definitions CD2:14
Div. III. Contribution Limitations CD2:14
Div. IV. Expenditure Ceilings and Matching Funds CD2:17
Div. V. Acceptance of Expenditure Ceilings CD2:19
Div. VI. Independent Expenditures CD2:19
Div. VII. Additional Disclosure Requirements CD2:19
Div. VIII. Agency Responsibility CD2:19
Div. IX. Campaign Account Designation CD2:20
Div. X. Disposal of Surplus Funds CD2:20

Title Page

Div. XI. Enforcement ... CD2:21
Div. XII. Miscellaneous Provisions ... CD2:22
2.02. Reserved ... CD2:22.1
2.03. City Council ... CD2:22.1
Art. I. Rules of the Council ... CD2:22.1
Art. II. General Regulations ... CD2:29
Art. III. Legislative Department ... CD2:29
2.06. City Officers ... CD2:29
2.07. Code of Conduct and Ethics ... CD2:30
2.08. Lobbyists ... CD2:30.2
2.09. Revolving Door Restrictions ... CD2:34
2.10. Volunteers ... CD2:35
2.12. Fire Department ... CD2:36
2.15. Police Department ... CD2:36
2.17. Department of Disaster Preparedness and Emergency Communications ... CD2:38
2.18. Advisory Boards, Commissions and Committees ... CD2:38
2.21. Representation on Board of Directors of the Metropolitan Water District of Southern California ... CD2:41
2.24. Board of Health and Human Services ... CD2:41
2.27. Airport Advisory Commission ... CD2:42
2.33. Citizen's Advisory Commission on Disabilities ... CD2:43
2.36. Economic Development Commission ... CD2:44
2.38. Climate Resilient and Sustainable City Commission ... CD2:45
2.42. Reserved ... CD2:46
2.44. Equity and Human Relations Commission ... CD2:46
2.45. Commission on Women and Girls ... CD2:47
2.46. Industrial Development Authority ... CD2:48
2.48. Marine Advisory Commission ... CD2:49
2.50. Technology and Innovation Commission ... CD2:48.2
2.52. Public Safety Advisory Commission ... CD2:51
2.54. Recreation Commission ... CD2:53
2.56. Commission on Youth and Families ... CD2:54
2.57. Advisory Commission on Aging ... CD2:54.1
2.60. Veterans Affairs Commission ... CD2:54.1
2.63. Cultural Heritage Commission ... CD2:54.2
2.66. Reserved ... CD2:61
2.69. Civil Defense ... CD2:61
2.72. Equal Opportunity Contract Compliance Program ... CD2:65
2.73. Equal Benefits to Employees of City Contractors ... CD2:69
2.75. Ambulance Service ... CD2:72
2.78. Unclaimed Property ... CD2:73
2.81. Public Safety Building ... CD2:74
2.83. Claims Procedure ... CD2:74
2.84. Contracts ... CD2:75
Div. I. General Supplies and Materials ... CD2:75

Title Page

Div. II. Repealed CD2:77
Div. III. Private Work or Services Contracts CD2:77
Div. IV. Real Estate Purchase Contracts CD2:79
Div. V. Procurement and Management of Job Order Contracts CD2:80
2.85. Procurement During a Proclaimed Emergency or Disaster CD2:80.1
2.86. Public Contracts CD2:80.3
2.87. Public Works Contracts and Wages CD2:81
Div. I. Contracts CD2:81
Div. II. Wages CD2:82
2.90. Environmental Impact Reports CD2:83
2.93. Conduct of Hearings CD2:84
2.96. Judicial Review of Administrative Decisions CD2:89
2.97. Emergency Response Cost Recovery CD2:89
2.99. Records Reproduction Cost Recovery CD2:89
Title 3. Revenue and Finance CD3:1
3.04. Annual Budget Procedure CD3:21
3.08. Community Redevelopment Agency Administrative Fund CD3:23
3.12. Deferred Compensation Fund CD3:24
3.16. Gas Revolving Fund CD3:24
3.20. Imprest Cash Funds CD3:25
3.24. Redevelopment Revolving Fund CD3:25
3.28. Retirement and Social Security Fund CD3:26
3.32. Special Gas Tax Street Improvement Fund CD3:26
3.36. Special Public Improvement Fund CD3:26
3.40. Warrants CD3:27
3.44. Checks CD3:29
3.48. Claims and Refunds CD3:30
3.52. Bonds and Public Improvement Financing CD3:32
Div. I. Revenue Bonds CD3:32
Div. II. Industrial Development Revenue Bonds CD3:33
Subdiv. 1. General Provisions and Definitions CD3:33
Subdiv. 2. Financing Industrial Development Facilities CD3:35
Subdiv. 3. Bonds CD3:36
Subdiv. 4. Supplemental Provisions CD3:38
Div. III. Health Facilities Bonds CD3:38
Subdiv. 1. General Provisions and Definitions CD3:38
Subdiv. 2. Financing Health Facilities CD3:40
Subdiv. 3. Bonds CD3:41
Subdiv. 4. Supplemental Provisions CD3:43
Div. IV. Long Beach Assessment District Bonds CD3:44
Subdiv. 1. General Provisions and Definitions CD3:44
Subdiv. 2. Creating District, Resolution of Intention, Report, and City Contribution CD3:45
Subdiv. 3. Hearing and Notice CD3:47
Subdiv. 4. Protest CD3:48

Title Page

Subdiv. 5. Change of Work, Boundaries of Assessment District, Amounts of Assessments or Proceedings. . . . CD3:49
Subdiv. 6. Levying and Collecting the Assessment . . . CD3:50
Subdiv. 7. Assessment Bonds . . . CD3:50
Subdiv. 8. Urgency Proceedings. . . . CD3:53
Subdiv. 9. Miscellaneous . . . CD3:53
Div. V. Special Tax Financing Improvement Procedures . . . CD3:54
Subdiv. 1. General Provisions . . . CD3:54
Subdiv. 2. Proceedings to Create a Community Facilities District . . . CD3:59
Subdiv. 3. Changes in Authorized Facilities, Services and Special Taxes . CD3:66
Subdiv. 4. Annexation of Territory. . . . CD3:67
Subdiv. 5. Procedures for Levying. . . . CD3:69
Subdiv. 6. Bonds . . . CD3:71
Div. VI. Structural Seismic Resistance and Structural Repair Assessment District Formation . . . CD3:76
Subdiv. 1. Definitions and General Provisions . . . CD3:76
Subdiv. 2. Procedures for Forming Assessment Districts and Levying Assessments. . . . CD3:78
Subdiv. 3. Procedures for the Sale and Issuance of Bonds . . . CD3:102
3.56. Real Property Transfer Tax . . . CD3:112
3.60. Sales and Use Tax . . . CD3:114
3.62. Transactions and Use Tax . . . CD3:118
3.64. Transient Occupancy Tax. . . . CD3:120.2
3.68. Utility Users Tax . . . CD3:127
3.72. Tennis Trust Account . . . CD3:135
3.76. Commercial and Industrial Land Bank . . . CD3:135
3.80. Business License Tax . . . CD3:136
Div. I. Purpose and Definitions . . . CD3:136
Div. II. Imposition of Business License Tax . . . CD3:141
Div. III. Exclusions and Exemptions . . . CD3:152.1
Div. IV. Administration, Enforcement and Penalties . . . CD3:152.2
Subdiv. 1. General. . . . CD3:152.2
Subdiv. 2. Application and Administration . . . CD3:152.3
Subdiv. 3. Rulemaking . . . CD3:157
Subdiv. 4. Enforcement . . . CD3:157
Subdiv. 5. Adjustment for Inflation/Deflation. . . . CD3:159
Div. V. License Term and Transitional Provisions . . . CD3:160
3.90. Development Permit Center Surcharge . . . CD3:160
3.91. Surcharge on Building, Zoning and Related Permit Fees . . . CD3:161
3.92. Housing Trust Fund . . . CD3:161
3.94. Budget Stabilization ("Rainy Day") Fund . . . CD3:163
Title 4. (Reserved) . . . CD4:1
Title 5. Regulation of Businesses, Trades and Professions . . . CD5:1
Part I. General Provisions . . . CD5:26.3
5.02. Purpose and Definitions . . . CD5:26.3

Title Page

Part II. Administration, Enforcement and Penalties CD5:26.3
5.04. Administration CD5:26.3
5.06. Cancellations, Suspensions, Revocations, Denials and Appeals CD5:26.6
5.08. Enforcement and Penalties CD5:26.8
Part III. Particular Business Regulations CD5:26.9
5.09. Employment Discrimination CD5:26.9
5.12. Alarm Systems CD5:27
5.16. Automobile Businesses CD5:31
Art. I. Definitions CD5:31
Art. II. Automobile Dealers—New and Used CD5:31
Art. III. Auto Repair Shops CD5:31
Art. IV. Public Garages and Valet Parking CD5:32
Art. V. Auto Wreckers CD5:32
Art. VI. Car Rental Agencies CD5:32
5.20. Bingo CD5:32
5.24. Boxing and Wrestling Exhibitions CD5:39
5.26. Carnivals, Circuses and Related Concessions CD5:43
5.28. Charitable Solicitations CD5:43
5.30. Cigarette Vending Machines CD5:52
5.32. Coin and Stamp Dealers CD5:52
5.34. Escorts and Escort Bureaus CD5:53
5.35. Microenterprise Home Kitchen Operations CD5:56
5.36. Firearms Dealer CD5:61
5.37. Mobile Food Facilities CD5:61
Div. 1. Purpose and Definitions CD5:61
Div. 2. Administration CD5:62.1
Div. 3. General Operating Conditions and Locations CD5:62.3
Div. 4. Enforcement and Penalties CD5:62.8
5.38. Fortunetelling CD5:62.9
5.40. Garage Sales CD5:62.9
5.42. Gasoline Sales CD5:64
5.44. Going-out-of-business Sales CD5:65
5.46. Handbills and Advertising CD5:66
5.47. Horse-drawn Carriages CD5:67
5.48. Hotels and Motels CD5:70
5.49. Hotel Working Conditions CD5:73
5.50. House Movers CD5:74.3
5.51. Reserved CD5:74.3
5.52. Junk Dealers CD5:74.3
5.53. COVID-19 Citywide Worker Retention CD5:74.6
5.54. Hotel Worker Safety Precautions CD5:74.9
5.55. COVID-19 Citywide Worker Recall CD5:74.11
5.56. Locksmiths CD5:74.13
5.57. Nuisance Motel Regulation CD5:74.13
5.58. Massage Establishments CD5:74.16

Title Page

5.59. Mortgage Modification Consultant CD5:84
5.60. Parades and Special Events CD5:88
5.61. Filming Activities CD5:94
5.62. Patrol Systems CD5:97
5.64. Pawnbrokers and Secondhand Dealers CD5:98
5.65. Swap Meets and Display Selling Events CD5:102
5.66. Peddlers CD5:105
5.68. Pedicabs CD5:106
5.69. Amusements CD5:116
5.70. Public Bathhouses, Health Parlors and Spas CD5:121
5.71. Publicly Accessible Exterior Pay Telephones CD5:122
5.72. Entertainment and Similar Activities CD5:126
5.73. Sidewalk Vendors CD5:136.6
Div. I. Purpose and Definitions CD5:136.6
Div. II. Administration CD5:136.7
Div. III. General Operating Conditions and Locations CD5:136.9
Div. IV. Enforcement and Penalties CD5:136.13
5.74. Rummage Sales CD5:136.15
5.75. Social Clubs CD5:137
5.76. Discount Coupon Book and Membership Sales CD5:140
5.77. Short-Term Rentals CD5:140
5.78. Tattooing CD5:142
5.80. Vehicles for Hire CD5:143
5.81. Tobacco Retail Permit CD5:158
5.82. Tow Operations CD5:158.5
5.86. Water Taxis, Charter Boats and Similar Vessels CD5:163
5.87. Reserved CD5:166
5.88. Smoking Lounges CD5:166
5.89. Reserved CD5:170
5.90. Medical Marijuana Businesses CD5:170
5.91. Premium Pay For Grocery Workers CD5:192
5.92. Adult-Use Cannabis Businesses and Activities CD5:195
Div. I. Purpose and Definitions CD5:195
Div. II. Administration CD5:206
Subdiv. I. General Authority CD5:206
Subdiv. II. Permit Application and Administration CD5:208
Subdiv. III. Permit Terms and Modifications CD5:213
Div. III. General Operating Conditions CD5:215
Subdiv. I. Cannabis Facility and Location Requirements CD5:215
Subdiv. II. General Operating Requirements CD5:219
Subdiv. III. Cannabis Goods CD5:223
Subdiv. IV. Security CD5:224
Subdiv. V. Prohibited Activities CD5:228
Div. IV. Dispensary Operating Conditions CD5:229
Div. V. Cultivation Operating Conditions CD5:234

Title Page

Div. VI. Manufacturing Operating Conditions CD5:235
Div. VII. Shared Use Manufacturing Operating Conditions CD5:239
Div. VIII. Distribution Operating Conditions CD5:242
Div. IX. Testing Laboratory Operating Conditions CD5:244
Div. X. Enforcement and Penalties CD5:245
Div. XI. Equity Program CD5:252
Div. XII. Delivery-Only Dispensary Operating Conditions CD5:256
Div. XIII. General Operating Conditions CD5:260
5.93. Grocery and Drug Store Staffing Standards for Self-Service Checkout Stations CD5:261
5.94. Reserved CD5:263
5.95. Third-Party Food Delivery Service Fees CD5:263
5.96. Reserved CD5:265
Title 6. Animals CD6:1
6.04. Animal Shelter CD6:5
6.08. Dog and Cat Licensing CD6:7
6.12. Rabies Control CD6:9
6.16. Animal Regulation CD6:11
6.20. Fowl, Rabbits and Goats CD6:25
6.22. Insect Control Measures CD6:28
6.24. Pigeons and Bees CD6:29
6.28. Police Animals CD6:30
Title 7. (Reserved) CD7:1
Title 8. Health and Safety CD8:1
8.04. Health Department Services CD8:17
8.08. Communicable Diseases CD8:17
8.12. Drugs CD8:20
8.13. Personal Cultivation of Cannabis CD8:21
8.16. Food Sale Regulations CD8:21
8.17. Children's Meals CD8:22
8.20. Bakeries CD8:22.1
8.24. Fish Canneries CD8:23
8.26. Industrial Hygiene Services CD8:25
8.27. Community Lead Hazard Control/Abatement CD8:32
8.28. Meat Processing CD8:34
8.32. Meat Sales Initiative Ordinance CD8:37
8.36. Milk and Milk Products CD8:38
8.40. Mobile Food Facilities CD8:40
8.44. Food Facilities CD8:41
8.45. Food Facility CD8:44
8.46. Disposal of Fats, Oils and Grease CD8:46
8.48. Dairies and Hog Ranches CD8:53
8.52. Fumigating and Disinfecting CD8:55
8.56. Weed Removal CD8:55
8.58. Graffiti Abatement CD8:60

Title Page

8.59. Reserved CD8:65
8.60. Solid Waste, Recycling and Litter Prevention and Mandatory Organic Waste Disposal Reduction CD8:65
8.61. Shopping Carts CD8:85
8.62. Plastic Carryout Bags CD8:89
8.63. Polystyrene Food Packaging CD8:93
8.64. Air Pollution CD8:94.4
8.65. Mobile Source Air Pollution Reduction CD8:95
8.68. Smoking in Public Places CD8:97
8.72. Sawdust Storage CD8:102
8.76. Property Maintenance CD8:102
8.77. Urban Agriculture Incentive Zone (UAIZ) Act CD8:110.1
8.80. Noise CD8:110.3
8.81. Fireworks CD8:128
8.85. Underground and Above ground Storage Tanks CD8:130
8.86. Hazardous Materials Release Response Plans and Inventory CD8:131
8.87. Hazardous Waste Control CD8:132
8.88. Hazardous Materials—Cleanup CD8:132.1
8.90. Alcoholic Beverages—Warning Signs CD8:132.2
8.94. AIDS Discrimination CD8:133
8.95. Domestic Partnership Registration CD8:136
8.96. Stormwater and Runoff Pollution Control CD8:137
8.97. Reserved CD8:147
8.98. Temporary Prohibition of No-Fault Notices and Evictions CD8:147
8.99. Just Cause for Termination of Tenancies CD8:149
8.100. Temporary Prohibition of Evictions Due to COVID-19 ..... CD8:155
8.101. Tenant Harassment CD8:156
8.102. Temporary Prohibition of Demolition and Substantial No-Fault Notices and Evictions CD8:159
8.110. Reserved CD8:159
8.120. Reserved CD8:160

Title 9. Public Peace, Morals and Welfare CD9:1

Part I. General Provisions CD9:9
9.02. Definitions CD9:9
Part II. Offenses by or Against Public Officers and Government CD9:10
9.08. Impersonating an Officer CD9:10
Part III. Offenses Against the Person CD9:10
9.14. Tort Claims CD9:10
Part IV. Offenses Against Public Decency CD9:10
9.16. Narcotics Related Nuisance Abatement CD9:10
9.17. Unlawful Weapons or Ammunition on Real Property Abatement CD9:12.1
9.20. Nudity CD9:12.3
9.22. Alcoholic Beverages CD9:12.4
9.24. Gambling CD9:13
9.25. Public Excretion CD9:14

Title Page

Part V. Offenses Against Public Peace CD9:14
9.30. Disorderly Conduct CD9:14
9.31. Loud Parties on Private Property CD9:15
9.32. Drive-in Restaurants CD9:16
9.33. City Library Rules CD9:16.1
9.34. Circulating Petitions CD9:16.2
9.35. Aggressive Solicitation CD9:16.2
9.36. Loitering for Drug Activities or Graffiti CD9:17
9.37. Long Beach Nuisance Code CD9:17
Part VI. Offenses Against Property CD9:24
9.38. Public Works Offices, Buildings and Yards CD9:24
9.40. Seizure, Impoundment and Forfeiture of Vehicles CD9:25
9.42. Trespassing CD9:29
9.46. Flood Control Facilities CD9:31
Part VII. Offenses by or Against Minors CD9:32
9.52. Firearms CD9:32
9.54. Drug Paraphernalia CD9:32
9.56. Pressurized Paint Containers CD9:33
9.57. Marking Pens and Etching Tools CD9:33
9.58. Loitering CD9:34
9.60. Regulation of Sexually Explicit Materials CD9:35
9.61. Social Host Regulations CD9:36
Part VIII. Weapons CD9:36.2
9.62. Firearms Discharge CD9:36.2
9.64. Prohibited Weapons CD9:37
Part IX. Enforcement CD9:37
9.65. Administrative Citations and Penalties CD9:37
9.66. Sex Offender Residency Restrictions CD9:44
Title 10. Vehicles and Traffic CD10:1
10.02. Definitions CD10:11
10.04. Administration CD10:12
10.06. Violation Notices CD10:14
10.08. Traffic-Control Devices CD10:14
10.10. Turning Movements CD10:17
10.12. Speed Limits CD10:18
10.14. One-Way Streets and Alleys CD10:28
10.16. Streets Closed Adjacent to Schools CD10:32
10.18. Vehicles Restricted from Streets CD10:32.1
10.20. Special Stops CD10:33
10.22. Parking—Regulations CD10:40
10.24. Parking—Restrictions CD10:47
10.25. Motor Vehicle Alarms CD10:51
10.26. Stopping While Loading or Unloading CD10:51
10.28. Parking Meters CD10:53
10.30. Beach Area Parking Lots CD10:57

Title Page

10.32. Preferential Residential Parking . . . CD10:61
10.33. Temporary Construction Preferential Parking District . . . CD10:68.1
10.34. Parking for Handicapped Persons in Public Places . . . CD10:70
10.36. Parking for Handicapped Persons in Private Off-Street Facilities . . . CD10:72
10.38. Miscellaneous Driving Rules . . . CD10:72.1
10.40. Truck Routes . . . CD10:75
10.41. Use of Streets by Overweight Vehicles . . . CD10:76
10.42. Driving on Flood Control Structures . . . CD10:79
10.44. White Canes . . . CD10:79
10.46. Abandoned Vehicles . . . CD10:79
10.48. Bicycles . . . CD10:85
10.49. Prohibition on Repairs and Sales of Bicycles and Bicycle Parts on Public Property . . . CD10:87
10.50. Bicycle Registration . . . CD10:87
10.51. Electrically Motorized Boards . . . CD10:88
10.52. Rollerskating . . . CD10:89
10.54. Skateboards . . . CD10:90.1
10.56. Vehicle Overloads . . . CD10:90.3
10.58. Pedestrians . . . CD10:91
10.60. School Buses . . . CD10:92
10.62. Public Transportation . . . CD10:93
10.64. Enforcement . . . CD10:94
10.66. Control of Vehicular Cruising . . . CD10:94
10.68. Adult Crossing Guards . . . CD10:95
10.69. Parking Restricted to Senior Citizens . . . CD10:96
10.70. Golf Cart Crossing Zones . . . CD10:97
10.71. Shared Micromobility Device Program . . . CD10:98
10.80. Toledo Bridge Over Rivo Alto Canal . . . CD10:102
10.81. Ravenna Bridge Over Rivo Alto Canal . . . CD10:103
10.82. Spectators Prohibited at Street Races, Sideshows, and Reckless Driving Exhibitions . . . CD10:103

Title 11. (Reserved) . . . CD11:1

Title 12. Long Beach Oil Code . . . CD12:1

12.04. General Provisions . . . CD12:7
12.08. Oil Operating Areas . . . CD12:9
12.12. Permits . . . CD12:21
12.16. Well Location . . . CD12:27
12.20. Derricks . . . CD12:28
12.24. Blowout Protection . . . CD12:28
12.26. Natural Gas Processing Facilities . . . CD12:28
12.28. Development Standards . . . CD12:29
12.32. Noise . . . CD12:29
12.36. Abandoned and Idle Wells . . . CD12:31
12.40. Storage . . . CD12:33
12.44. Fire Prevention . . . CD12:34

Title Page

12.48. Enforcement and Review Procedure CD12:34
12.52. Permit Revocation Procedure CD12:36
12.56. Hazardous Liquid Pipelines CD12:38
12.60. Exemption of County Flood Control District CD12:40
12.64. Restricted Area Initiative Ordinance and Amendments CD12:41
Title 13. (Reserved) CD13:1
Title 14. Streets and Sidewalks CD14:1
14.04. Obstruction of Streets and Sidewalks CD14:7
14.06. Reserved CD14:10
14.08. Excavations, Street Improvements and Temporary Occupation of Rights-of-Way CD14:10
Art. I. General Provisions CD14:10
Art. II. Permits CD14:11
Art. III. Construction Standards CD14:15
Art. IV. Excavations Adjacent to Rights-of-Way CD14:17
14.12. Excavation Warning Devices CD14:17
14.14. Public Walkway Occupancy Permits CD14:18
14.15. Parklets CD14:20.1
14.16. Benches CD14:20.8
14.20. Newsracks CD14:23
14.24. Railroads Obstructing Streets CD14:29
14.28. Trees and Shrubs CD14:31
14.32. Reserved CD14:33
14.36. House Numbers on Curbs CD14:33
14.40. Selling of Tickets of Admission to Places of Public Assemblage in Public Places and Places Open to the Public CD14:35
14.44. Temporary Fencing and Graphic Screening CD14:35
14.48. Encroachments Into the Public Right-of-Way CD14:37

VOLUME II

Title 15. Public Utilities CD15:1
15.01. Sewers—Rules, Regulations and Charges CD15:9
15.04. Sewers—Definitions CD15:9
15.08. Sewers—Permits CD15:12
15.16. Sewers—Industrial Waste and Wastewater CD15:13
15.20. Sewers—Use Regulations CD15:15
15.24. Sewers—Installation CD15:18
15.28. Sewers—Inspection and Enforcement CD15:20
15.32. Water and Electrode Wells CD15:21
15.34. Wireless Telecommunications Facilities in the Public Rights-of-Way CD15:25
15.36. Gas Rates CD15:26.20
15.40. Gas Regulations CD15:31
15.44. Pipelines and Utilities CD15:42

Title Page

15.48. Underground Utility Districts CD15:51
15.74. Cable System Regulatory Ordinance of the City of Long Beach CD15:54
15.75. Regulation of State Video Franchise Holders CD15:75
Title 16. Public Facilities and Historical Landmarks..... CD16:1
16.04. Piers..... CD16:16.1
16.08. Marinas CD16:16.3
Art. I. Definitions CD16:16.3
Art. II. Director of the Marine Bureau..... CD16:24
Art. III. General Regulations..... CD16:26
Art. IV. Special Regulations CD16:31
Art. V. Private Piers, Wharves and Docks..... CD16:34
Art. VI. Mooring Areas..... CD16:36
Art. VII. Mooring Permits and Fees CD16:37
Art. VIII. Marina Slip Permits and Fees..... CD16:38
Art. IX. Miscellaneous Provisions CD16:39
16.12. Pacific Ocean Areas..... CD16:40
Art. I. Definitions CD16:40
Art. II. Nearshore Ocean Areas CD16:41
Art. III. South Shore Small Boat Launch Ramp, Golden Shore Marine Biological Reserve and Catalina Landing..... CD16:44
Art. IV. Claremont Avenue Launching Ramp CD16:44.1
16.16. Parks and Beaches CD16:45
16.20. El Dorado Park East..... CD16:50
16.22. El Dorado East Nature Center..... CD16:52
16.24. Park Clubhouse CD16:52
16.28. Municipal Golf Courses CD16:53
16.32. Long Beach Convention Center..... CD16:55
16.36. Veterans' Memorial Building CD16:56
16.40. Municipal Market CD16:58
16.43. Airport Noise Compatibility..... CD16:61
16.44. Airport CD16:70
16.47. Off-Airport Car Rentals..... CD16:76
16.48. Cemetery CD16:77
16.52. Historic Landmarks CD16:79
16.54. Shoreline Park Recreational Vehicle Area..... CD16:178.2
16.55. Advertising on Public Property and Facilities CD16:179
16.58. Labor Peace Agreements for the Airport and the Long Beach Convention Center CD16:180
16.59. Worker Retention at the Airport and the Long Beach Convention Center . CD16:182
16.60. Payment of Living Wage to Workers at the Long Beach Airport, Convention Center, and Temporary Amphitheater CD16:184
Title 17. (Reserved)..... CD17:1
Title 18. Long Beach Building Standards Code CD18:1
18.01. General Provisions..... CD18:23
18.02. Definitions..... CD18:28

Title Page

18.03. Administration and Enforcement CD18:33
18.04. Permits CD18:38
18.05. Submittal Documents CD18:48
18.06. Fees CD18:58
18.07. Inspections CD18:67
18.08. Certificate of Occupancy CD18:74
18.09. Violations CD18:76
18.10. Board of Appeals CD18:78
18.11. Building Address and Number CD18:80
18.15. Police Facilities Impact Fee CD18:81
18.16. Fire Facilities Impact Fee CD18:88
18.17. Transportation Improvement Fee CD18:95
18.18. Park and Recreation Facilities Fee CD18:106
18.19. Sensitive Coastal Resource Impact Fee CD18:113
18.20. Unsafe Buildings or Structures CD18:120
18.21. Maintenance of Long-Term Boarded and Vacated Buildings CD18:128
18.24. Foreclosure Registry Program CD18:133
18.25. Tenant Relocation and Code Enforcement CD18:140
18.29. Maintenance of Vacant Lots CD18:146
18.30. Proactive Rental Housing Inspection Program CD18:149
18.40. Building Code CD18:154
18.41. Residential Code CD18:179
18.42. Electrical Code CD18:195
18.43. Plumbing Code CD18:196
18.44. Mechanical Code CD18:196
18.45. Housing Code CD18:196
18.46. Energy Code CD18:199
18.47. Green Building Standards Code CD18:199
18.48. Fire Code CD18:200
18.49. Existing Building Code CD18:218
18.50. Historical Building Code CD18:224
18.51. Wildland-Urban Interface Code CD18:226
18.60. Moving Buildings CD18:226
18.62. Report on Available Off-Street Parking Spaces Upon Resale CD18:232
18.63. Alternative Building Standards for Adaptive Reuse Projects CD18:234
18.64. Sandblasting CD18:235
18.65. Demolition of Historic Landmarks CD18:237
18.67. Construction and Demolition Recycling Program CD18:237
18.68. Earthquake Hazard Regulations CD18:242
18.69. Voluntary Earthquake Hazard Reduction in Existing Wood Frame Residential Buildings With Weak Cripple Walls and Unbolted Sill Plates CD18:263
18.70. Voluntary Earthquake Hazard Reduction in Existing Wood Frame Residential Buildings With Soft, Weak or Open Front Walls CD18:270
18.71. Voluntary Earthquake Hazard Reduction in Existing Reinforced Concrete Buildings and Concrete Frame Buildings With Masonry Infills CD18:277

Title Page

18.72. Voluntary Earthquake Hazard Reduction in Existing Reinforced Concrete and Reinforced Masonry Wall Buildings With Flexible Diaphragms CD18:289
18.74. Low Impact Development Standards CD18:293
18.75. Grading, Excavations and Fills CD18:296
18.76. Streamlined Permitting Process for Electric Vehicle Charging Stations and Hydrogen-Fueling Stations CD18:303
18.77. Streamlined Permitting Process for Solar Energy Systems and Energy Storage Systems CD18:305
18.78. Construction in the Vicinity of Abandoned Oil Wells CD18:306
18.79. Methane Gas Mitigation CD18:309
18.99. Findings CD18:313
Title 19. (Reserved) CD19:1
Title 20. Subdivisions CD20:1
20.02. General Provisions CD20:11
20.04. Review Authority CD20:14
20.06. Types of Maps Required CD20:18
20.08. Design Standards CD20:19
20.10. Dedication and Improvements CD20:27
20.12. Tentative Maps CD20:30
20.14. Vesting Tentative Maps CD20:38
20.16. Final Maps CD20:39
20.18. Urban Lot Split (Parcel Map) CD20:41
20.20. Lot Line Adjustment CD20:48
20.22. Voluntary Lot Mergers CD20:50
20.24. City-Initiated Lot Mergers CD20:54
20.28. Illegal Lots and Certificates of Compliance CD20:56
20.30. Common Interest Subdivisions CD20:57
20.31. Airspace Subdivisions CD20:58
20.32. Condominium, Community Apartment Project and Stock Cooperative Conversion CD20:59
Art. 1. General Provisions CD20:59
Art. 2. Residential Rental to Residential/Commercial/Industrial Ownership Requirements CD20:61
Art. 3. Commercial/Industrial/Rental to Commercial/Industrial/Residential Ownership CD20:66
Art. 4. Mixed Use Conversions CD20:69
Art. 5. Exceptions and Special Requirements CD20:69
Art. 6. Disclosure of Prior Occupancy Status CD20:69
20.34. Subdivision of a Mobilehome Park CD20:70
Art. 1. Conversion to Another Use CD20:70
Art. 2. Conversion of a Mobilehome Park to a Condominium, Community Apartment or Stock Cooperative CD20:71
Art. 3. Subdivision of an Existing Mobilehome Park to Create Individual Ownership Lots CD20:71
20.36. Definitions CD20:73

Title Page

Prior Code Cross-Reference Table PCR:1
Ordinance List and Disposition Table ODT:1
Code Comparative Table and Disposition List CCT:1
Code Index CDi:1

VOLUME III

Title 21. Zoning CD21:1
21.10. General Provisions CD21:33
21.11. No Net Loss CD21:37
21.15. Definitions CD21:38.4
21.21. Administrative Procedures CD21:115
Div. I. Hearing Bodies CD21:115
Div. II. Initiation of Procedures CD21:115
Div. III. Noticing of Hearings CD21:117
Div. IV. Conduct of Hearings and Effect of Action CD21:122
Div. V. Appeals CD21:124
Div. VI. Revocations CD21:126
Div. VII. Fees CD21:126
Div. VIII. Limitation of Actions CD21:127
21.25. Specific Procedures CD21:127
Div. I. Zone Changes and Zoning Regulation Amendments CD21:127
Div. II. Conditional Use Permits CD21:129
Div. III. Standards Variance CD21:131
Div. IV. Administrative Use Permits CD21:132
Div. V. Site Plan Review CD21:134
Div. VI. Classification of Uses CD21:141
Div. VII. Planned Development District and Specific Plan Procedures CD21:143
Div. VIII. Special Setbacks CD21:144
Div. IX. Local Coastal Development Permits CD21:146
Div. X. Repealed CD21:150.3
Div. XI. Determination of Applicable Law CD21:150.3
Div. XII. Interim Park Use Permit CD21:153
Div. XIII. Reasonable Accommodation CD21:154
21.27. Nonconformities CD21:158
21.29. Development Agreements CD21:165
21.30. Districts Established CD21:169
21.31. Residential Districts CD21:172
Div. I. Permitted Uses CD21:175
Div. II. Development Standards CD21:176
Div. III. Planned Unit Developments CD21:201
21.32. Commercial Districts CD21:204
Div. I. Permitted Uses CD21:206
Div. II. Development Standards CD21:220

Title Page

21.33. Industrial Districts CD21:227
Div. I. Permitted Uses CD21:229
Div. II. Development Standards CD21:241
21.34. Institutional District CD21:246
Div. I. Permitted Uses CD21:247
Div. II. Development Standards CD21:247
21.35. Park District CD21:252
Div. I. Permitted Uses CD21:253
Div. II. Development Standards CD21:258
21.36. Public Right-of-Way CD21:260
Div. I. Permitted Uses CD21:260
Div. II. Development Standards CD21:261
21.37. Planned Development Districts and Specific Plan CD21:261
Div. I. Planned Development Districts CD21:261
Div. II. Specific Plans CD21:264.1
21.38. Horse Overlay District CD21:264.2
Div. I. Permitted Uses CD21:264.2
Div. II. Development Standards CD21:265
21.39. High-Rise Overlay District CD21:267
Div. I. Permitted Uses CD21:268
Div. II. Development Standards CD21:268
21.40. Height Limit Overlay District (HL) CD21:269
Div. I. Permitted Uses CD21:269
Div. II. Development Standards CD21:270
21.41. Off-Street Parking and Loading Requirements CD21:270
Div. I. General Provisions CD21:270
Div. II. Parking Regulations CD21:275
Div. III. Loading Regulations CD21:296
21.42. Landscaping Standards CD21:298.1
21.43. Fences and Garden Walls CD21:308.1
21.44. On-Premises Signs CD21:308.3
Div. I. Major Signs CD21:316
Div. II. Special Major Signs CD21:329
Div. III. Minor Signs CD21:333
Div. IV. Temporary Signs CD21:334
Div. V. Permit Exempt Signs CD21:337
Div. VI. Prohibited Signs CD21:338.1
Div. VII. Nonconforming, Abandoned, and Illegal Signs and Other Provisions CD21:338.2.1
Div. VIII. Electronic Message Center Signs CD21:338.4
Div. IX. Signs on Public Property CD21:338.10
21.45. Special Development Standards CD21:338.12
21.47. Dedication, Reservation and Improvement of Public Rights-of-Way CD21:348.9
21.50. Interim Prohibition of Uses CD21:351
21.51. Accessory Uses CD21:354
Div. I. Use Restrictions CD21:354

Title Page

Div. II. Use Conditions CD21:355
21.52. Conditional Uses CD21:366.1
Div. I. General Provisions CD21:366.2
Div. II. Special Conditions for Conditional and Administrative Use Permits. CD21:366.2
21.53. Temporary Uses CD21:396
21.54. Billboards CD21:396.5
Div. I. Use Regulations CD21:397
Div. II. Development Standards CD21:406.1
Div. III. Abandoned and Illegal Billboards CD21:406.4
Div. IV. Nonconforming Billboards CD21:407
21.56. Wireless Communications Facilities CD21:409
21.57. Alcohol Nuisance Abatement CD21:427
21.60. Reserved CD21:432
21.61. Maintenance of Low Income Housing in the Coastal Zone CD21:449
21.62. Reserved CD21:455
21.63. Incentives for Affordable Housing CD21:455
21.64. Transportation Demand and Trip Reduction Measures CD21:457
21.65. Interim Motel/Hotel Conversions CD21:461
21.66. Unpermitted Dwelling Unit Amnesty Program CD21:465
21.67. Inclusionary Housing CD21:468
21.68. Enhanced Density Bonus CD21:483
21.69. Temporary Suspension of Certain Provisions of Title 21 During a Proclaimed Local Emergency Caused by Homelessness CD21:492

Title 22. Transitional Zoning Code: Zone in Specified Areas CD22:1
22.10 General Provisions CD22:5
22.11 Definitions CD22:5
22.12 Districts Established CD22:7
22.13 Specific Procedures CD22:9
22.15 Uses CD22:12
22.20 Specific Use Standards CD22:38
22.25 Special Use Incentives (A-Series Zones) CD22:44
22.30 General Provisions - Development Standards (RMU, MM, C Zones) CD22:54
22.35 Temporary Suspension of Certain Provisions of Title 22 During a Proclaimed Local Emergency Caused by Homelessness CD22:70
22.40 General Provisions - Development Standards (MFR Zones) CD22:71
22.41. General Provisions - Development Standards (NI Zones) CD22:77

Checklist of Up-to-Date Pages

(This checklist will be updated with the printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

Page No.	Supp. No.	Page No.	Supp. No.
Volume I		CD1:5, CD1:6	OC
Title page	35	CD1:7, CD1:8	OC
iii	31	CD1:9, CD1:10	35
v, vi	35	CD1:11, CD1:12	48
xi, xii	52	CD1:12.1, CD1:12.2	44
xiii, xiv	52	CD1:12.3, CD1:12.4	44
xv, xvi	52	CD1:12.5, CD1:12.6	44
xvii, xviii	52	CD1:12.7, CD1:12.8	44
xix, xx	52	CD1:13, CD1:14	38
xxi, xxii	52	CD1:15, CD1:16	38
xxiii, xxiv	52	CD1:17, CD1:18	38
xxv, xxvi	52	CD1:18.1, CD1:18.2	38
xxvii	52	CD1:18.3, CD1:18.4	38
SH:1, SH:2	5	CD1:18.5, CD1:18.6	38
SH:3, SH:4	16	CD1:19, CD1:20	44
SH:5, SH:6	26	CD1:21, CD1:22	44
SH:7, SH:8	34	CD1:23, CD1:24	44
SH:9, SH:10	44	CD1:25, CD1:26	44
SH:11, SH:12	52	CD2:1, CD2:2	44
CD1:1, CD1:2	44	CD2:3, CD2:4	41
CD1:3, CD1:4	44	CD2:5, CD2:6	43

Page No.	Supp. No.	Page No.	Supp. No.
CD2:7, CD2:8	42	CD2:65, CD2:66	OC
CD2:9, CD2:10	42	CD2:67, CD2:68	OC
CD2:11, CD2:12	42	CD2:69, CD2:70	OC
CD2:13, CD2:14	48	CD2:71, CD2:72	OC
CD2:14.1	48	CD2:73, CD2:74	29
CD2:15, CD2:16	44	CD2:75, CD2:76	41
CD2:17, CD2:18	44	CD2:77, CD2:78	35
CD2:19, CD2:20	44	CD2:79, CD2:80	35
CD2:21, CD2:22	44	CD2:80.1, CD2:80.2	43
CD2:22.1	44	CD2:80.3, CD2:80.4	40
CD2:23, CD2:24	39	CD2:81, CD2:82	OC
CD2:25, CD2:26	41	CD2:83, CD2:84	OC
CD2:27, CD2:28	41	CD2:85, CD2:86	OC
CD2:29, CD2:30	41	CD2:87, CD2:88	OC
CD2:30.1, CD2:30.2	39	CD2:89	OC
CD2:30.3, CD2:30.4	39	CD3:1, CD3:2	OC
CD2:31, CD2:32	OC	CD3:3, CD3:4	OC
CD2:33, CD2:34	OC	CD3:5, CD3:6	OC
CD2:35, CD2:36	OC	CD3:7, CD3:8	OC
CD2:37, CD2:38	21	CD3:9, CD3:10	OC
CD2:39, CD2:40	45	CD3:11, CD3:12	OC
CD2:40.1, CD2:40.2	45	CD3:13, CD3:14	29
CD2:41, CD2:42	41	CD3:15, CD3:16	47
CD2:43, CD2:44	43	CD3:17, CD3:18	29
CD2:45, CD2:46	43	CD3:19	27
CD2:46.1	43	CD3:21, CD3:22	OC
CD2:47, CD2:48	42	CD3:23, CD3:24	OC
CD2:49, CD2:50	42	CD3:25, CD3:26	OC
CD2:51, CD2:52	42	CD3:27, CD3:28	OC
CD2:53, CD2:54	42	CD3:29, CD3:30	8
CD2:54.1, CD2:54.2	42	CD3:31, CD3:32	39
CD2:54.3, CD2:54.4	42	CD3:32.1	39
CD2:54.5	42	CD3:33, CD3:34	OC
CD2:55, CD2:56	12	CD3:35, CD3:36	OC
CD2:57, CD2:58	12	CD3:37, CD3:38	OC
CD2:59, CD2:60	29	CD3:39, CD3:40	OC
CD2:61, CD2:62	41	CD3:41, CD3:42	OC
CD2:63, CD2:64	41	CD3:43, CD3:44	OC

Page No.	Supp. No.	Page No.	Supp. No.
CD3:45, CD3:46	OC	CD3:120.1, CD3:120.2	51
CD3:47, CD3:48	OC	CD3:120.3, CD3:120.4	47
CD3:49, CD3:50	OC	CD3:120.5	47
CD3:51, CD3:52	OC	CD3:121, CD3:122	OC
CD3:53, CD3:54	OC	CD3:123, CD3:124	OC
CD3:55, CD3:56	OC	CD3:125, CD3:126	OC
CD3:57, CD3:58	OC	CD3:127, CD3:128	48
CD3:59, CD3:60	OC	CD3:129, CD3:130	48
CD3:61, CD3:62	OC	CD3:131, CD3:132	OC
CD3:63, CD3:64	OC	CD3:133, CD3:134	OC
CD3:65, CD3:66	OC	CD3:135, CD3:136	OC
CD3:67, CD3:68	OC	CD3:137, CD3:138	44
CD3:69, CD3:70	OC	CD3:139, CD3:140	44
CD3:71, CD3:72	OC	CD3:141, CD3:142	44
CD3:73, CD3:74	OC	CD3:143, CD3:144	44
CD3:75, CD3:76	OC	CD3:145, CD3:146	44
CD3:77, CD3:78	OC	CD3:147, CD3:148	45
CD3:79, CD3:80	OC	CD3:149, CD3:150	45
CD3:81, CD3:82	OC	CD3:151, CD3:152	47
CD3:83, CD3:84	OC	CD3:152.1, CD3:152.2	45
CD3:85, CD3:86	OC	CD3:152.3, CD3:152.4	45
CD3:87, CD3:88	OC	CD3:153, CD3:154	OC
CD3:89, CD3:90	OC	CD3:155, CD3:156	OC
CD3:91, CD3:92	OC	CD3:157, CD3:158	OC
CD3:93, CD3:94	OC	CD3:159, CD3:160	27
CD3:95, CD3:96	OC	CD3:161, CD3:162	44
CD3:97, CD3:98	OC	CD3:163, CD3:164	44
CD3:99, CD3:100	OC	CD3:165	44
CD3:101, CD3:102	OC	CD4:1	OC
CD3:103, CD3:104	OC	CD5:1, CD5:2	OC
CD3:105, CD3:106	OC	CD5:3, CD5:4	OC
CD3:107, CD3:108	OC	CD5:5, CD5:6	52
CD3:109, CD3:110	OC	CD5:7, CD5:8	52
CD3:111, CD3:112	OC	CD5:9, CD5:10	52
CD3:113, CD3:114	OC	CD5:11, CD5:12	52
CD3:115, CD3:116	OC	CD5:13, CD5:14	52
CD3:117, CD3:118	51	CD5:15, CD5:16	52
CD3:119, CD3:120	51	CD5:17, CD5:18	52

Page No.	Supp. No.	Page No.	Supp. No.
CD5:19, CD5:20	52	CD5:71, CD5:72	46
CD5:21, CD5:22	52	CD5:73, CD5:74	46
CD5:23, CD5:24	52	CD5:74.1, CD5:74.2	46
CD5:25, CD5:26	52	CD5:74.3, CD5:74.4	52
CD5:26.1	52	CD5:74.5, CD5:74.6	36
CD5:26.3, CD5:26.4	52	CD5:74.7, CD5:74.8	36
CD5:26.5, CD5:26.6	52	CD5:74.9, CD5:74.10	36
CD5:26.7, CD5:26.8	52	CD5:74.11, CD5:74.12	36
CD5:26.9, CD5:26.10	52	CD5:74.13, CD5:74.14	36
CD5:26.11	52	CD5:74.15, CD5:74.16	36
CD5:27, CD5:28	OC	CD5:75, CD5:76	21
CD5:29, CD5:30	OC	CD5:77, CD5:78	21
CD5:31, CD5:32	OC	CD5:79, CD5:80	21
CD5:33, CD5:34	OC	CD5:81, CD5:82	21
CD5:35, CD5:36	OC	CD5:83, CD5:84	21
CD5:37, CD5:38	OC	CD5:85, CD5:86	OC
CD5:39, CD5:40	41	CD5:87, CD5:88	2
CD5:41, CD5:42	41	CD5:89, CD5:90	2
CD5:42.1	41	CD5:91, CD5:92	2
CD5:43, CD5:44	OC	CD5:93, CD5:94	2
CD5:45, CD5:46	OC	CD5:95, CD5:96	2
CD5:47, CD5:48	OC	CD5:97, CD5:98	4
CD5:49, CD5:50	OC	CD5:101, CD5:102	OC
CD5:51, CD5:52	OC	CD5:103, CD5:104	OC
CD5:53, CD5:54	OC	CD5:105, CD5:106	44
CD5:55, CD5:56	52	CD5:107	44
CD5:57, CD5:58	52	CD5:111, CD5:112	OC
CD5:59, CD5:60	52	CD5:113, CD5:114	OC
CD5:61, CD5:62	52	CD5:115, CD5:116	OC
CD5:62.1, CD5:62.2	52	CD5:117, CD5:118	27
CD5:62.3, CD5:62.4	52	CD5:119, CD5:120	27
CD5:62.5, CD5:62.6	52	CD5:120.1	27
CD5:62.7, CD5:62.8	52	CD5:121, CD5:122	OC
CD5:62.9	52	CD5:123, CD5:124	OC
CD5:63, CD5:64	OC	CD5:125, CD5:126	1
CD5:65, CD5:66	OC	CD5:127, CD5:128	1
CD5:67, CD5:68	46	CD5:129, CD5:130	1
CD5:69, CD5:70	46	CD5:131, CD5:132	1

Page No.	Supp. No.	Page No.	Supp. No.
CD5:132.1, CD5:132.2	1	CD5:171, CD5:172	37
CD5:132.3	1	CD5:173, CD5:174	37
CD5:133, CD5:134	OC	CD5:175, CD5:176	37
CD5:135, CD5:136	8	CD5:177, CD5:178	16
CD5:136.1, CD5:136.2	8	CD5:179, CD5:180	16
CD5:136.3, CD5:136.4	8	CD5:181, CD5:182	16
CD5:136.5, CD5:136.6	44	CD5:183, CD5:184	30
CD5:136.7, CD5:136.8	44	CD5:185, CD5:186	16
CD5:136.9, CD5:136.10	44	CD5:187, CD5:188	16
CD5:136.11,	44	CD5:189, CD5:190	17
CD5:136.12		CD5:191, CD5:192	37
CD5:136.13,	44	CD5:193, CD5:194	37
CD5:136.14		CD5:195, CD5:196	37
CD5:136.15	44	CD5:197, CD5:198	52
CD5:137, CD5:138	OC	CD5:199, CD5:200	52
CD5:139, CD5:140	48	CD5:201, CD5:202	52
CD5:140.1, CD5:140.2	48	CD5:203, CD5:204	52
CD5:140.3, CD5:140.4	48	CD5:205, CD5:206	52
CD5:140.5, CD5:140.6	51	CD5:206.1	52
CD5:140.7, CD5:140.8	51	CD5:207, CD5:208	37
CD5:141, CD5:142	52	CD5:209, CD5:210	37
CD5:143, CD5:144	52	CD5:211, CD5:212	37
CD5:145, CD5:146	52	CD5:213, CD5:214	37
CD5:147, CD5:148	52	CD5:215, CD5:216	47
CD5:149, CD5:150	52	CD5:216.1	47
CD5:151, CD5:152	52	CD5:217, CD5:218	37
CD5:153, CD5:154	52	CD5:219, CD5:220	37
CD5:155, CD5:156	52	CD5:221, CD5:222	37
CD5:157, CD5:158	52	CD5:223, CD5:224	37
CD5:158.1, CD5:158.2	52	CD5:225, CD5:226	37
CD5:158.3, CD5:158.4	52	CD5:227, CD5:228	42
CD5:158.5, CD5:158.6	52	CD5:229, CD5:230	47
CD5:159, CD5:160	OC	CD5:231, CD5:232	47
CD5:161, CD5:162	OC	CD5:233, CD5:234	47
CD5:163, CD5:164	OC	CD5:234.1	47
CD5:165, CD5:166	OC	CD5:235, CD5:236	37
CD5:167, CD5:168	3	CD5:237, CD5:238	37
CD5:169, CD5:170	16	CD5:239, CD5:240	37

Page No.	Supp. No.	Page No.	Supp. No.
CD5:241, CD5:242	37	CD8:16.1	52
CD5:243, CD5:244	37	CD8:17, CD8:18	OC
CD5:245, CD5:246	37	CD8:19, CD8:20	OC
CD5:247, CD5:248	37	CD8:21, CD8:22	28
CD5:249, CD5:250	37	CD8:22.1, CD8:22.2	28
CD5:251, CD5:252	37	CD8:23, CD8:24	OC
CD5:253, CD5:254	37	CD8:25, CD8:26	OC
CD5:255, CD5:256	47	CD8:27, CD8:28	OC
CD5:257, CD5:258	47	CD8:29, CD8:30	OC
CD5:259, CD5:260	52	CD8:31, CD8:32	OC
CD5:261, CD5:262	52	CD8:33, CD8:34	OC
CD5:263, CD5:264	52	CD8:35, CD8:36	OC
CD5:265	52	CD8:37, CD8:38	OC
CD6:1, CD6:2	9	CD8:39, CD8:40	52
CD6:3	10	CD8:41, CD8:42	52
CD6:5, CD6:6	OC	CD8:43, CD8:44	52
CD6:7, CD6:8	OC	CD8:45, CD8:46	52
CD6:9, CD6:10	OC	CD8:47	52
CD6:11, CD6:12	10	CD8:51, CD8:52	OC
CD6:13, CD6:14	9	CD8:53, CD8:54	OC
CD6:14.1, CD6:14.2	9	CD8:55, CD8:56	51
CD6:15, CD6:16	OC	CD8:57, CD8:58	51
CD6:17, CD6:18	OC	CD8:59, CD8:60	OC
CD6:19, CD6:20	47	CD8:61, CD8:62	OC
CD6:21, CD6:22	9	CD8:63, CD8:64	OC
CD6:23, CD6:24	OC	CD8:65, CD8:66	35
CD6:25, CD6:26	10	CD8:67, CD8:68	35
CD6:27, CD6:28	10	CD8:69, CD8:70	35
CD6:29, CD6:30	10	CD8:71, CD8:72	35
CD7:1	OC	CD8:73, CD8:74	35
CD8:1, CD8:2	28	CD8:75, CD8:76	35
CD8:3, CD8:4	52	CD8:77, CD8:78	35
CD8:5, CD8:6	52	CD8:79, CD8:80	35
CD8:7, CD8:8	52	CD8:81, CD8:82	35
CD8:9, CD8:10	52	CD8:83, CD8:84	35
CD8:11, CD8:12	52	CD8:84.1, CD8:84.2	35
CD8:13, CD8:14	52	CD8:84.3, CD8:84.4	35
CD8:15, CD8:16	52	CD8:84.5, CD8:84.6	35

Page No.	Supp. No.	Page No.	Supp. No.
CD8:84.7, CD8:84.8	35	CD8:143, CD8:144	39
CD8:84.9, CD8:84.10	35	CD8:145, CD8:146	39
CD8:84.11, CD8:84.12	35	CD8:146.1	39
CD8:85, CD8:86	OC	CD8:147, CD8:148	46
CD8:87, CD8:88	OC	CD8:149, CD8:150	46
CD8:89, CD8:90	OC	CD8:151, CD8:152	46
CD8:91, CD8:92	OC	CD8:153, CD8:154	46
CD8:93, CD8:94	28	CD8:155, CD8:156	46
CD8:94.1, CD8:94.2	28	CD8:157, CD8:158	46
CD8:94.3, CD8:94.4	28	CD8:159, CD8:160	46
CD8:94.5	28	CD9:1, CD9:2	27
CD8:95, CD8:96	23	CD9:3, CD9:4	45
CD8:97, CD8:98	23	CD9:5, CD9:6	45
CD8:99, CD8:100	23	CD9:7	51
CD8:101, CD8:102	52	CD9:9, CD9:10	6
CD8:103, CD8:104	52	CD9:11, CD9:12	6
CD8:105, CD8:106	52	CD9:12.1, CD9:12.2	11
CD8:107, CD8:108	27	CD9:12.3, CD9:12.4	11
CD8:109, CD8:110	27	CD9:13, CD9:14	27
CD8:110.1, CD8:110.2	27	CD9:15, CD9:16	45
CD8:110.3, CD8:110.4	27	CD9:16.1, CD9:16.2	45
CD8:111, CD8:112	OC	CD9:17, CD9:18	OC
CD8:113, CD8:114	42	CD9:19, CD9:20	OC
CD8:115, CD8:116	42	CD9:21, CD9:22	OC
CD8:117, CD8:118	42	CD9:23, CD9:24	27
CD8:119, CD8:120	42	CD9:25, CD9:26	OC
CD8:121, CD8:122	42	CD9:27, CD9:28	OC
CD8:123, CD8:124	OC	CD9:29, CD9:30	OC
CD8:125, CD8:126	OC	CD9:31, CD9:32	OC
CD8:127, CD8:128	33	CD9:33, CD9:34	OC
CD8:129, CD8:130	40	CD9:35, CD9:36	4
CD8:131, CD8:132	40	CD9:36.1, CD9:36.2	4
CD8:132.1, CD8:132.2	40	CD9:37, CD9:38	OC
CD8:133, CD8:134	OC	CD9:39, CD9:40	12
CD8:135, CD8:136	OC	CD9:41, CD9:42	OC
CD8:137, CD8:138	39	CD9:43, CD9:44	51
CD8:139, CD8:140	39	CD9:45, CD9:46	51
CD8:141, CD8:142	39	CD10:1, CD10:2	52

Page No.	Supp. No.	Page No.	Supp. No.
CD10:3, CD10:4	52	CD10:67, CD10:68	49
CD10:5, CD10:6	52	CD10:68.1	49
CD10:7, CD10:8	52	CD10:69, CD10:70	OC
CD10:9, CD10:10	52	CD10:71, CD10:72	29
CD10:10.1	52	CD10:72.1	48
CD10:11, CD10:12	21	CD10:73, CD10:74	OC
CD10:12.1	21	CD10:75, CD10:76	52
CD10:13, CD10:14	OC	CD10:77, CD10:78	OC
CD10:15, CD10:16	OC	CD10:79, CD10:80	OC
CD10:17, CD10:18	52	CD10:81, CD10:82	16
CD10:19, CD10:20	52	CD10:83, CD10:84	16
CD10:21, CD10:22	52	CD10:85, CD10:86	52
CD10:23, CD10:24	52	CD10:87, CD10:88	52
CD10:25, CD10:26	52	CD10:89, CD10:90	41
CD10:27, CD10:28	52	CD10:90.1, CD10:90.2	41
CD10:29, CD10:30	34	CD10:90.3	41
CD10:31, CD10:32	34	CD10:91, CD10:92	OC
CD10:32.1	34	CD10:93, CD10:94	2
CD10:33, CD10:34	OC	CD10:95, CD10:96	OC
CD10:35, CD10:36	OC	CD10:97, CD10:98	24
CD10:37, CD10:38	OC	CD10:99, CD10:100	24
CD10:39, CD10:40	OC	CD10:101, CD10:102	29
CD10:41, CD10:42	OC	CD10:103, CD10:104	51
CD10:43, CD10:44	OC	CD10:105	51
CD10:45, CD10:46	OC	CD11:1	OC
CD10:47, CD10:48	52	CD12:1, CD12:2	19
CD10:49, CD10:50	52	CD12:3, CD12:4	16
CD10:50.1, CD10:50.2	52	CD12:5	16
CD10:50.3	52	CD12:7, CD12:8	16
CD10:51, CD10:52	OC	CD12:9, CD12:10	16
CD10:53, CD10:54	21	CD12:11, CD12:12	16
CD10:55, CD10:56	29	CD12:13, CD12:14	19
CD10:57, CD10:58	29	CD12:14.1	19
CD10:58.1	23	CD12:15, CD12:16	16
CD10:59, CD10:60	OC	CD12:17, CD12:18	16
CD10:61, CD10:62	OC	CD12:19, CD12:20	19
CD10:63, CD10:64	OC	CD12:20.1	19
CD10:65, CD10:66	14	CD12:21, CD12:22	16

Page No.	Supp. No.
CD12:23, CD12:24	16
CD12:25, CD12:26	16
CD12:27, CD12:28	16
CD12:29, CD12:30	16
CD12:31, CD12:32	16
CD12:33, CD12:34	16
CD12:35, CD12:36	16
CD12:37, CD12:38	16
CD12:39, CD12:40	16
CD12:41, CD12:42	16
CD12:43, CD12:44	16
CD12:45, CD12:46	16
CD12:47, CD12:48	16
CD12:49	16
CD13:1	OC
CD14:1, CD14:2	44
CD14:3, CD14:4	44
CD14:5, CD14:6	44
CD14:7, CD14:8	44
CD14:9, CD14:10	44
CD14:11, CD14:12	27
CD14:13, CD14:14	27
CD14:15, CD14:16	27
CD14:16.1, CD14:16.2	27
CD14:17, CD14:18	44
CD14:19, CD14:20	44
CD14:20.1, CD14:20.2	44
CD14:20.3, CD14:20.4	44
CD14:20.5, CD14:20.6	44
CD14:20.7, CD14:20.8	44
CD14:21, CD14:22	OC
CD14:23, CD14:24	OC
CD14:25, CD14:26	1
CD14:27, CD14:28	1
CD14:29, CD14:30	OC
CD14:31, CD14:32	OC
CD14:33, CD14:34	27
CD14:35, CD14:36	27
CD14:37, CD14:38	27
Volume II	
Title page	36
CD15:1, CD15:2	OC
CD15:3, CD15:4	21
CD15:5, CD15:6	21
CD15:7	21
CD15:9, CD15:10	OC
CD15:11, CD15:12	OC
CD15:13, CD15:14	OC
CD15:15, CD15:16	OC
CD15:17, CD15:18	OC
CD15:19, CD15:20	OC
CD15:21, CD15:22	OC
CD15:23, CD15:24	OC
CD15:25, CD15:26	21
CD15:26.1, CD15:26.2	21
CD15:26.3, CD15:26.4	21
CD15:26.5, CD15:26.6	21
CD15:26.7, CD15:26.8	21
CD15:26.9, CD15:26.10	21
CD15:26.11, CD15:26.12	21
CD15:26.13, CD15:26.14	21
CD15:26.15, CD15:26.16	21
CD15:26.17, CD15:26.18	21
CD15:26.19, CD15:26.20	21
CD15:26.21, CD15:26.22	21
CD15:27, CD15:28	OC
CD15:29, CD15:30	OC
CD15:31, CD15:32	1
CD15:32.1	1
CD15:33, CD15:34	OC

Page No.	Supp. No.	Page No.	Supp. No.
CD15:35, CD15:36	OC	CD16:27, CD16:28	OC
CD15:37, CD15:38	11	CD16:29, CD16:30	44
CD15:38.1	11	CD16:31, CD16:32	44
CD15:39, CD15:40	OC	CD16:32.1	38
CD15:41, CD15:42	OC	CD16:33, CD16:34	OC
CD15:43, CD15:44	OC	CD16:35, CD16:36	OC
CD15:45, CD15:46	OC	CD16:37, CD16:38	15
CD15:47, CD15:48	OC	CD16:39, CD16:40	38
CD15:49, CD15:50	OC	CD16:41, CD16:42	38
CD15:51, CD15:52	OC	CD16:43, CD16:44	38
CD15:53, CD15:54	OC	CD16:44.1	38
CD15:55, CD15:56	OC	CD16:45, CD16:46	OC
CD15:57, CD15:58	OC	CD16:47, CD16:48	44
CD15:59, CD15:60	OC	CD16:49, CD16:50	44
CD15:61, CD15:62	OC	CD16:50.1	44
CD15:63, CD15:64	OC	CD16:51, CD16:52	OC
CD15:65, CD15:66	OC	CD16:53, CD16:54	OC
CD15:67, CD15:68	OC	CD16:55, CD16:56	OC
CD15:69, CD15:70	OC	CD16:57, CD16:58	OC
CD15:71, CD15:72	OC	CD16:59, CD16:60	OC
CD15:73, CD15:74	OC	CD16:61, CD16:62	48
CD15:75, CD15:76	21	CD16:63, CD16:64	48
CD16:1, CD16:2	47	CD16:65, CD16:66	48
CD16:3, CD16:4	38	CD16:67, CD16:68	48
CD16:5, CD16:6	39	CD16:69, CD16:70	48
CD16:7, CD16:8	OC	CD16:70.1	48
CD16:9, CD16:10	OC	CD16:71, CD16:72	OC
CD16:11, CD16:12	OC	CD16:73, CD16:74	OC
CD16:13, CD16:14	50	CD16:75, CD16:76	OC
CD16:15	50	CD16:77, CD16:78	OC
CD16:16.1, CD16:16.2	44	CD16:79, CD16:80	OC
CD16:16.3	44	CD16:81, CD16:82	OC
CD16:17, CD16:18	38	CD16:83, CD16:84	OC
CD16:19, CD16:20	38	CD16:85, CD16:86	OC
CD16:21, CD16:22	38	CD16:87, CD16:88	OC
CD16:23, CD16:24	15	CD16:89, CD16:90	OC
CD16:25, CD16:26	47	CD16:91, CD16:92	OC
CD16:26.1	47	CD16:93, CD16:94	OC

Page No.	Supp. No.	Page No.	Supp. No.
CD16:95, CD16:96	OC	CD16:171, CD16:172	OC
CD16:97, CD16:98	OC	CD16:173, CD16:174	13
CD16:99, CD16:100	OC	CD16:175, CD16:176	31
CD16:101, CD16:102	OC	CD16:177, CD16:178	44
CD16:103, CD16:104	OC	CD16:178.1,	50
CD16:105, CD16:106	OC	CD16:178.2	
CD16:107, CD16:108	OC	CD16:178.3	50
CD16:109, CD16:110	OC	CD16:179, CD16:180	31
CD16:111, CD16:112	OC	CD16:181, CD16:182	31
CD16:113, CD16:114	OC	CD16:183, CD16:184	49
CD16:115, CD16:116	OC	CD16:185, CD16:186	49
CD16:117, CD16:118	OC	CD17:1	OC
CD16:119, CD16:120	OC	CD18:1, CD18:2	51
CD16:121, CD16:122	OC	CD18:3, CD18:4	51
CD16:123, CD16:124	OC	CD18:5, CD18:6	51
CD16:125, CD16:126	OC	CD18:7, CD18:8	51
CD16:127, CD16:128	OC	CD18:9, CD18:10	51
CD16:129, CD16:130	OC	CD18:11, CD18:12	51
CD16:131, CD16:132	OC	CD18:13, CD18:14	51
CD16:133, CD16:134	OC	CD18:15, CD18:16	51
CD16:135, CD16:136	OC	CD18:17, CD18:18	51
CD16:137, CD16:138	OC	CD18:19, CD18:20	51
CD16:139, CD16:140	OC	CD18:21	51
CD16:141, CD16:142	OC	CD18:23, CD18:24	51
CD16:143, CD16:144	OC	CD18:25, CD18:26	51
CD16:145, CD16:146	OC	CD18:27, CD18:28	51
CD16:147, CD16:148	OC	CD18:29, CD18:30	51
CD16:149, CD16:150	OC	CD18:31, CD18:32	51
CD16:151, CD16:152	OC	CD18:33, CD18:34	51
CD16:153, CD16:154	OC	CD18:35, CD18:36	51
CD16:155, CD16:156	OC	CD18:37, CD18:38	51
CD16:157, CD16:158	OC	CD18:39, CD18:40	51
CD16:159, CD16:160	OC	CD18:41, CD18:42	51
CD16:161, CD16:162	OC	CD18:43, CD18:44	51
CD16:163, CD16:164	OC	CD18:45, CD18:46	51
CD16:165, CD16:166	OC	CD18:47, CD18:48	51
CD16:167, CD16:168	OC	CD18:49, CD18:50	51
CD16:169, CD16:170	OC	CD18:51, CD18:52	51

Page No.	Supp. No.	Page No.	Supp. No.
CD18:53, CD18:54	51	CD18:129, CD18:130	51
CD18:55, CD18:56	51	CD18:131, CD18:132	51
CD18:57, CD18:58	51	CD18:133, CD18:134	51
CD18:59, CD18:60	51	CD18:135, CD18:136	51
CD18:61, CD18:62	51	CD18:137, CD18:138	51
CD18:63, CD18:64	51	CD18:139, CD18:140	51
CD18:65, CD18:66	51	CD18:141, CD18:142	51
CD18:67, CD18:68	51	CD18:143, CD18:144	51
CD18:69, CD18:70	51	CD18:145, CD18:146	51
CD18:71, CD18:72	51	CD18:147, CD18:148	51
CD18:73, CD18:74	51	CD18:149, CD18:150	51
CD18:75, CD18:76	51	CD18:151, CD18:152	51
CD18:77, CD18:78	51	CD18:153, CD18:154	51
CD18:79, CD18:80	51	CD18:155, CD18:156	51
CD18:81, CD18:82	51	CD18:157, CD18:158	51
CD18:83, CD18:84	51	CD18:159, CD18:160	51
CD18:85, CD18:86	51	CD18:161, CD18:162	51
CD18:87, CD18:88	51	CD18:163, CD18:164	51
CD18:89, CD18:90	51	CD18:165, CD18:166	51
CD18:91, CD18:92	51	CD18:167, CD18:168	51
CD18:93, CD18:94	51	CD18:169, CD18:170	51
CD18:95, CD18:96	51	CD18:171, CD18:172	51
CD18:97, CD18:98	51	CD18:173, CD18:174	51
CD18:99, CD18:100	51	CD18:175, CD18:176	51
CD18:101, CD18:102	51	CD18:177, CD18:178	51
CD18:103, CD18:104	51	CD18:179, CD18:180	51
CD18:105, CD18:106	51	CD18:181, CD18:182	51
CD18:107, CD18:108	51	CD18:183, CD18:184	51
CD18:109, CD18:110	51	CD18:185, CD18:186	51
CD18:111, CD18:112	51	CD18:187, CD18:188	51
CD18:113, CD18:114	51	CD18:189, CD18:190	51
CD18:115, CD18:116	51	CD18:191, CD18:192	51
CD18:117, CD18:118	51	CD18:193, CD18:194	51
CD18:119, CD18:120	51	CD18:195, CD18:196	51
CD18:121, CD18:122	51	CD18:197, CD18:198	51
CD18:123, CD18:124	51	CD18:199, CD18:200	51
CD18:125, CD18:126	51	CD18:201, CD18:202	51
CD18:127, CD18:128	51	CD18:203, CD18:204	51

Page No.	Supp. No.	Page No.	Supp. No.
CD18:205, CD18:206	51	CD18:281, CD18:282	51
CD18:207, CD18:208	51	CD18:283, CD18:284	51
CD18:209, CD18:210	51	CD18:285, CD18:286	51
CD18:211, CD18:212	51	CD18:287, CD18:288	51
CD18:213, CD18:214	51	CD18:289, CD18:290	51
CD18:215, CD18:216	51	CD18:291, CD18:292	51
CD18:217, CD18:218	51	CD18:293, CD18:294	51
CD18:219, CD18:220	51	CD18:295, CD18:296	51
CD18:221, CD18:222	51	CD18:297, CD18:298	51
CD18:223, CD18:224	51	CD18:299, CD18:300	51
CD18:225, CD18:226	51	CD18:301, CD18:302	51
CD18:227, CD18:228	51	CD18:303, CD18:304	51
CD18:229, CD18:230	51	CD18:305, CD18:306	51
CD18:231, CD18:232	51	CD18:307, CD18:308	51
CD18:233, CD18:234	51	CD18:309, CD18:310	51
CD18:235, CD18:236	51	CD18:311, CD18:312	51
CD18:237, CD18:238	51	CD18:313	51
CD18:239, CD18:240	51	CD19:1	OC
CD18:241, CD18:242	51	CD20:1, CD20:2	44
CD18:243, CD18:244	51	CD20:3, CD20:4	44
CD18:245, CD18:246	51	CD20:5, CD20:6	44
CD18:247, CD18:248	51	CD20:7, CD20:8	44
CD18:249, CD18:250	51	CD20:9, CD20:10	44
CD18:251, CD18:252	51	CD20:11, CD20:12	44
CD18:253, CD18:254	51	CD20:13, CD20:14	44
CD18:255, CD18:256	51	CD20:15, CD20:16	44
CD18:257, CD18:258	51	CD20:17, CD20:18	44
CD18:259, CD18:260	51	CD20:19, CD20:20	44
CD18:261, CD18:262	51	CD20:21, CD20:22	44
CD18:263, CD18:264	51	CD20:23, CD20:24	44
CD18:265, CD18:266	51	CD20:25, CD20:26	44
CD18:267, CD18:268	51	CD20:27, CD20:28	44
CD18:269, CD18:270	51	CD20:29, CD20:30	44
CD18:271, CD18:272	51	CD20:31, CD20:32	44
CD18:273, CD18:274	51	CD20:33, CD20:34	44
CD18:275, CD18:276	51	CD20:35, CD20:36	44
CD18:277, CD18:278	51	CD20:37, CD20:38	44
CD18:279, CD18:280	51	CD20:39, CD20:40	44

Page No.	Supp. No.	Page No.	Supp. No.
CD20:41, CD20:42	44	PCR:37, PCR:38	OC
CD20:43, CD20:44	44	PCR:39, PCR:40	OC
CD20:45, CD20:46	44	PCR:41, PCR:42	OC
CD20:47, CD20:48	44	PCR:43, PCR:44	OC
CD20:49, CD20:50	44	PCR:45, PCR:46	OC
CD20:51, CD20:52	44	PCR:47, PCR:48	OC
CD20:53, CD20:54	44	PCR:49, PCR:50	OC
CD20:55, CD20:56	44	PCR:51, PCR:52	OC
CD20:57, CD20:58	44	PCR:53, PCR:54	OC
CD20:59, CD20:60	44	PCR:55, PCR:56	OC
CD20:61, CD20:62	44	PCR:57, PCR:58	OC
CD20:63, CD20:64	44	PCR:59, PCR:60	OC
CD20:65, CD20:66	44	PCR:61, PCR:62	OC
CD20:67, CD20:68	44	PCR:63, PCR:64	OC
CD20:69, CD20:70	44	PCR:65, PCR:66	OC
CD20:71, CD20:72	44	PCR:67, PCR:68	OC
CD20:73, CD20:74	44	PCR:69, PCR:70	OC
CD20:75, CD20:76	44	PCR:71, PCR:72	OC
CD20:77, CD20:78	44	PCR:73, PCR:74	OC
CD20:79, CD20:80	44	PCR:75, PCR:76	OC
PCR:1	OC	PCR:77, PCR:78	OC
PCR:3, PCR:4	OC	PCR:79, PCR:80	OC
PCR:5, PCR:6	OC	PCR:81, PCR:82	OC
PCR:7, PCR:8	OC	PCR:83, PCR:84	OC
PCR:9, PCR:10	OC	PCR:85, PCR:86	OC
PCR:11, PCR:12	OC	PCR:87, PCR:88	OC
PCR:13, PCR:14	OC	PCR:89, PCR:90	OC
PCR:15, PCR:16	OC	ODT:1, ODT:2	OC
PCR:17, PCR:18	OC	ODT:3, ODT:4	OC
PCR:19, PCR:20	OC	ODT:5, ODT:6	OC
PCR:21, PCR:22	OC	ODT:7, ODT:8	OC
PCR:23, PCR:24	OC	ODT:9, ODT:10	OC
PCR:25, PCR:26	OC	ODT:11, ODT:12	OC
PCR:27, PCR:28	OC	ODT:13, ODT:14	OC
PCR:29, PCR:30	OC	ODT:15, ODT:16	OC
PCR:31, PCR:32	OC	ODT:17, ODT:18	OC
PCR:33, PCR:34	OC	ODT:19, ODT:20	OC
PCR:35, PCR:36	OC	ODT:21, ODT:22	OC

Page No.	Supp. No.	Page No.	Supp. No.
ODT:23, ODT:24	OC	ODT:99, ODT:100	OC
ODT:25, ODT:26	OC	ODT:101, ODT:102	OC
ODT:27, ODT:28	OC	ODT:103, ODT:104	OC
ODT:29, ODT:30	OC	ODT:105, ODT:106	OC
ODT:31, ODT:32	OC	ODT:107, ODT:108	OC
ODT:33, ODT:34	OC	ODT:109, ODT:110	OC
ODT:35, ODT:36	OC	ODT:111, ODT:112	OC
ODT:37, ODT:38	OC	ODT:113	OC
ODT:39, ODT:40	OC	CCT:1, CCT:2	3
ODT:41, ODT:42	OC	CCT:3, CCT:4	OC
ODT:43, ODT:44	OC	CCT:5, CCT:6	OC
ODT:45, ODT:46	OC	CCT:7, CCT:8	1
ODT:47, ODT:48	OC	CCT:9, CCT:10	3
ODT:49, ODT:50	OC	CCT:11, CCT:12	8
ODT:51, ODT:52	OC	CCT:13, CCT:14	12
ODT:53, ODT:54	OC	CCT:15, CCT:16	16
ODT:55, ODT:56	OC	CCT:17, CCT:18	20
ODT:57, ODT:58	OC	CCT:19, CCT:20	23
ODT:59, ODT:60	OC	CCT:21, CCT:22	27
ODT:61, ODT:62	OC	CCT:23, CCT:24	27
ODT:63, ODT:64	OC	CCT:25, CCT:26	30
ODT:65, ODT:66	OC	CCT:27, CCT:28	31
ODT:67, ODT:68	OC	CCT:29, CCT:30	35
ODT:69, ODT:70	OC	CCT:31, CCT:32	37
ODT:71, ODT:72	OC	CCT:33, CCT:34	41
ODT:73, ODT:74	OC	CCT:35, CCT:36	44
ODT:75, ODT:76	OC	CCT:37, CCT:38	47
ODT:77, ODT:78	OC	CCT:39, CCT:40	51
ODT:79, ODT:80	OC	CCT:41, CCT:42	52
ODT:81, ODT:82	OC	CCT:43	52
ODT:83, ODT:84	OC	Volume III	
ODT:85, ODT:86	OC	Title page	36
ODT:87, ODT:88	OC	CD21:1, CD21:2	52
ODT:89, ODT:90	OC	CD21:3, CD21:4	52
ODT:91, ODT:92	OC	CD21:5, CD21:6	52
ODT:93, ODT:94	OC	CD21:7, CD21:8	52
ODT:95, ODT:96	OC	CD21:9, CD21:10	52
ODT:97, ODT:98	OC	CD21:11, CD21:12	52

Page No.	Supp. No.	Page No.	Supp. No.
CD21:13, CD21:14	52	CD21:76.1, CD21:76.2	52
CD21:15, CD21:16	52	CD21:76.3, CD21:76.4	52
CD21:17, CD21:18	52	CD21:76.5, CD21:76.6	52
CD21:19, CD21:20	52	CD21:76.7, CD21:76.8	52
CD21:21, CD21:22	52	CD21:76.9, CD21:76.10	52
CD21:23, CD21:24	52	CD21:76.11	52
CD21:25, CD21:26	52	CD21:77, CD21:78	3
CD21:27, CD21:28	52	CD21:79, CD21:80	22
CD21:29, CD21:30	52	CD21:81, CD21:82	47
CD21:31, CD21:32	52	CD21:82.1	47
CD21:32.1, CD21:32.2	52	CD21:83, CD21:84	23
CD21:32.3, CD21:32.4	52	CD21:85, CD21:86	23
CD21:32.5	52	CD21:87, CD21:88	29
CD21:33, CD21:34	OC	CD21:89, CD21:90	52
CD21:35, CD21:36	OC	CD21:91, CD21:92	29
CD21:37, CD21:38	36	CD21:93, CD21:94	36
CD21:38.1, CD21:38.2	36	CD21:94.1	36
CD21:38.3, CD21:38.4	36	CD21:95, CD21:96	29
CD21:38.5	36	CD21:97, CD21:98	29
CD21:39, CD21:40	19	CD21:99, CD21:100	29
CD21:41, CD21:42	21	CD21:101, CD21:102	29
CD21:43, CD21:44	47	CD21:103, CD21:104	52
CD21:45, CD21:46	47	CD21:105, CD21:106	52
CD21:47, CD21:48	52	CD21:107, CD21:108	52
CD21:49, CD21:50	52	CD21:108.1, CD21:108.2	52
CD21:51, CD21:52	52	CD21:108.3, CD21:108.4	52
CD21:53, CD21:54	52	CD21:108.5, CD21:108.6	52
CD21:55, CD21:56	52	CD21:109, CD21:110	OC
CD21:57, CD21:58	52	CD21:111, CD21:112	OC
CD21:59, CD21:60	52	CD21:113, CD21:114	OC
CD21:61, CD21:62	52	CD21:115, CD21:116	52
CD21:63, CD21:64	52	CD21:117, CD21:118	52
CD21:65, CD21:66	52	CD21:119, CD21:120	29
CD21:67, CD21:68	52	CD21:121, CD21:122	29
CD21:69, CD21:70	52	CD21:123, CD21:124	29
CD21:71, CD21:72	52		
CD21:73, CD21:74	52		
CD21:75, CD21:76	52		

Page No.	Supp. No.	Page No.	Supp. No.
CD21:124.1	29	CD21:181, CD21:182	29
CD21:125, CD21:126	24	CD21:182.1	29
CD21:127, CD21:128	24	CD21:183, CD21:184	OC
CD21:128.1	24	CD21:185, CD21:186	OC
CD21:129, CD21:130	OC	CD21:187, CD21:188	OC
CD21:131, CD21:132	47	CD21:189, CD21:190	27
CD21:133, CD21:134	47	CD21:191, CD21:192	27
CD21:135, CD21:136	47	CD21:193, CD21:194	OC
CD21:136.1	47	CD21:195, CD21:196	29
CD21:137, CD21:138	43	CD21:197, CD21:198	29
CD21:139, CD21:140	43	CD21:199, CD21:200	27
CD21:140.1	34	CD21:200.1	27
CD21:141, CD21:142	OC	CD21:201, CD21:202	12
CD21:143, CD21:144	14	CD21:202.1, CD21:202.2	12
CD21:145, CD21:146	29	CD21:202.3, CD21:202.4	44
CD21:147, CD21:148	42	CD21:203, CD21:204	44
CD21:149, CD21:150	42	CD21:205, CD21:206	29
CD21:150.1, CD21:150.2	42	CD21:207, CD21:208	30
CD21:150.3, CD21:150.4	42	CD21:209, CD21:210	30
CD21:151, CD21:152	OC	CD21:211, CD21:212	30
CD21:153, CD21:154	OC	CD21:213, CD21:214	52
CD21:155, CD21:156	OC	CD21:215, CD21:216	52
CD21:157, CD21:158	OC	CD21:217, CD21:218	52
CD21:159, CD21:160	47	CD21:219, CD21:220	52
CD21:161, CD21:162	47	CD21:221, CD21:222	52
CD21:163, CD21:164	47	CD21:222.1	52
CD21:164.1, CD21:164.2	47	CD21:223, CD21:224	29
CD21:165, CD21:166	OC	CD21:225, CD21:226	29
CD21:167, CD21:168	OC	CD21:227, CD21:228	29
CD21:169, CD21:170	12	CD21:229, CD21:230	29
CD21:171, CD21:172	12	CD21:231, CD21:232	29
CD21:173, CD21:174	12	CD21:233, CD21:234	29
CD21:175, CD21:176	29	CD21:235, CD21:236	29
CD21:177, CD21:178	29	CD21:237, CD21:238	52
CD21:179, CD21:180	35	CD21:239, CD21:240	52
		CD21:240.1,	52

Page No.	Supp. No.
CD21:240.2	
CD21:240.3, CD21:240.4	52
CD21:241, CD21:242	35
CD21:242.1	27
CD21:243, CD21:244	OC
CD21:245, CD21:246	21
CD21:247, CD21:248	29
CD21:249, CD21:250	35
CD21:251, CD21:252	21
CD21:253, CD21:254	52
CD21:255, CD21:256	52
CD21:257, CD21:258	52
CD21:259, CD21:260	OC
CD21:261, CD21:262	33
CD21:263, CD21:264	40
CD21:264.1, CD21:264.2	40
CD21:264.3	40
CD21:265, CD21:266	OC
CD21:267, CD21:268	49
CD21:269, CD21:270	24
CD21:271, CD21:272	47
CD21:273, CD21:274	47
CD21:275, CD21:276	47
CD21:277, CD21:278	47
CD21:278.1, CD21:278.2	47
CD21:278.3, CD21:278.4	47
CD21:278.5, CD21:278.6	47
CD21:279, CD21:280	19
CD21:281, CD21:282	19
CD21:283, CD21:284	OC
CD21:285, CD21:286	OC
CD21:287, CD21:288	47
CD21:289, CD21:290	47
CD21:290.1	47
CD21:291, CD21:292	26
CD21:293, CD21:294	OC
CD21:295, CD21:296	47
CD21:297, CD21:298	47
CD21:298.1	47
CD21:299, CD21:300	24
CD21:301, CD21:302	16
CD21:303, CD21:304	27
CD21:305, CD21:306	44
CD21:307, CD21:308	44
CD21:308.1, CD21:308.2	35
CD21:308.3	35
CD21:309, CD21:310	3
CD21:311, CD21:312	3
CD21:313, CD21:314	3
CD21:315, CD21:316	3
CD21:317, CD21:318	3
CD21:319, CD21:320	3
CD21:321, CD21:322	3
CD21:323, CD21:324	3
CD21:325, CD21:326	27
CD21:327, CD21:328	27
CD21:329, CD21:330	3
CD21:331, CD21:332	3
CD21:333, CD21:334	3
CD21:335, CD21:336	3
CD21:337, CD21:338	3
CD21:338.1, CD21:338.2	27
CD21:338.2.1	27
CD21:338.3, CD21:338.4	3
CD21:338.5, CD21:338.6	3
CD21:338.7, CD21:338.8	3

Page No.	Supp. No.
CD21:338.9, CD21:338.10	3
CD21:338.11, CD21:338.12	3
CD21:338.13, CD21:338.14	16
CD21:338.15, CD21:338.16	27
CD21:338.17, CD21:338.18	27
CD21:338.19, CD21:338.20	52
CD21:338.21, CD21:338.22	52
CD21:338.23, CD21:338.24	52
CD21:338.25, CD21:338.26	52
CD21:339, CD21:340	29
CD21:341, CD21:342	47
CD21:343, CD21:344	47
CD21:345, CD21:346	47
CD21:347, CD21:348	47
CD21:348.1, CD21:348.2	47
CD21:348.3, CD21:348.4	47
CD21:348.5, CD21:348.6	47
CD21:348.7, CD21:348.8	47
CD21:348.9, CD21:348.10	47
CD21:349, CD21:350	OC
CD21:351, CD21:352	OC
CD21:353, CD21:354	19
CD21:355, CD21:356	19
CD21:357, CD21:358	52
CD21:359, CD21:360	52
CD21:361, CD21:362	52
CD21:362.1	52
CD21:363, CD21:364	24
CD21:364.1, CD21:364.2	27
CD21:364.3, CD21:364.4	35
CD21:364.5, CD21:364.6	35
CD21:365, CD21:366	20
CD21:366.1, CD21:366.2	21
CD21:366.3, CD21:366.4	47
CD21:367, CD21:368	23
CD21:369, CD21:370	23
CD21:371, CD21:372	52
CD21:373, CD21:374	23
CD21:375, CD21:376	23
CD21:377, CD21:378	23
CD21:379, CD21:380	29
CD21:381, CD21:382	29
CD21:383, CD21:384	29
CD21:385, CD21:386	29
CD21:387, CD21:388	29
CD21:389, CD21:390	47
CD21:391, CD21:392	47
CD21:393, CD21:394	52
CD21:395, CD21:396	52
CD21:396.1, CD21:396.2	52
CD21:396.3, CD21:396.4	52
CD21:396.5, CD21:396.6	52
CD21:397, CD21:398	6
CD21:399, CD21:400	14
CD21:401, CD21:402	14

Page No.	Supp. No.	Page No.	Supp. No.
CD21:403, CD21:404	14	CD21:485, CD21:486	52
CD21:405, CD21:406	14	CD21:487, CD21:488	52
CD21:406.1,	14	CD21:489, CD21:490	52
CD21:406.2		CD21:491, CD21:492	52
CD21:406.3,	6	CD21:493, CD21:494	52
CD21:406.4		CD22:1, CD22:2	52
CD21:407, CD21:408	17	CD22:3, CD22:4	52
CD21:409, CD21:410	21	CD22:5	52
CD21:411, CD21:412	29	CD22:7, CD22:8	52
CD21:412.1	29	CD22:9, CD22:10	52
CD21:413, CD21:414	21	CD22:11, CD22:12	52
CD21:415, CD21:416	21	CD22:13, CD22:14	52
CD21:417, CD21:418	29	CD22:15, CD22:16	52
CD21:419, CD21:420	29	CD22:17, CD22:18	52
CD21:421, CD21:422	29	CD22:19, CD22:20	52
CD21:423, CD21:424	29	CD22:21, CD22:22	52
CD21:425, CD21:426	29	CD22:23, CD22:24	52
CD21:427, CD21:428	29	CD22:25, CD22:26	52
CD21:429, CD21:430	29	CD22:27, CD22:28	52
CD21:431, CD21:432	32	CD22:29, CD22:30	52
CD21:449, CD21:450	35	CD22:31, CD22:32	52
CD21:451, CD21:452	35	CD22:33, CD22:34	52
CD21:453, CD21:454	35	CD22:35, CD22:36	52
CD21:455, CD21:456	OC	CD22:37, CD22:38	52
CD21:457, CD21:458	OC	CD22:39, CD22:40	47
CD21:459, CD21:460	OC	CD22:41, CD22:42	47
CD21:461, CD21:462	42	CD22:43, CD22:44	47
CD21:463, CD21:464	42	CD22:45, CD22:46	47
CD21:465, CD21:466	42	CD22:47, CD22:48	47
CD21:467, CD21:468	48	CD22:49, CD22:50	47
CD21:469, CD21:470	52	CD22:51, CD22:52	52
CD21:471, CD21:472	52	CD22:53, CD22:54	52
CD21:473, CD21:474	52	CD22:55, CD22:56	52
CD21:475, CD21:476	52	CD22:57, CD22:58	52
CD21:477, CD21:478	52	CD22:59, CD22:60	52
CD21:479, CD21:480	52	CD22:61, CD22:62	52
CD21:481, CD21:482	52	CD22:63, CD22:64	52
CD21:483, CD21:484	52	CD22:65, CD22:66	52

SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code Book and are considered "Includes." Ordinances that are not of a general and permanent nature are not codified in the Code Book and are considered "Omits."

In addition, by adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
ORD-10-0037	12-14-2010	Omit	18
ORD-10-0038	1- 4-2011	Omit	18
ORD-10-0039	1-18-2011	Omit	18
ORD-10-0040	12-14-2010	Omit	18
ORD-11-0001	1- 4-2011	Include	18
ORD-11-0002	1-18-2011	Include	18
ORD-11-0003	2- 1-2011	Omit	18
ORD-11-0004	2- 1-2011	Include	18
ORD-11-0005	2-15-2011	Include	18
ORD-11-0006	2-15-2011	Include	18
ORD-11-0007	2-15-2011	Include	18
ORD-11-0008	4-19-2011	Include	18
ORD-11-0009	5-24-2011	Include	18
ORD-11-0010	6- 7-2011	Omit	18
ORD-11-0011	6- 7-2011	Include	18
ORD-11-0012	6-14-2011	Include	18
ORD-11-0013	7- 5-2011	Include	18
ORD-11-0014	8- 2-2011	Include	18
ORD-11-0015	8- 2-2011	Include	18
ORD-11-0016	8-16-2011	Omit	18
ORD-11-0017	8-16-2011	Omit	18
ORD-11-0018	8-16-2011	Omit	18
ORD-11-0019	9-13-2011	Omit	18
ORD-11-0020	9-13-2011	Omit	18
ORD-11-0021	9-13-2011	Include	18
ORD-11-0022	9-13-2011	Include	18
ORD-11-0023	9-13-2011	Omit	18
ORD-11-0024	10- 4-2011	Include	18
ORD-11-0025	10- 4-2011	Include	18
ORD-11-0026	11-15-2011	Include	18
ORD-11-0027	11-15-2011	Omit	18
ORD-11-0028	12-13-2011	Omit	18
ORD-11-0029	12-13-2011	Omit	18
ORD-11-0030	12-13-2011	Include	18
ORD-12-0003	2- 7-2012	Include	18

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
ORD-12-0001	1-17-2012	Omit	19
ORD-12-0002	1-17-2012	Omit	19
ORD-12-0004	2-14-2012	Include	19
ORD-12-0005	2-14-2012	Include	19
ORD-12-0006	3-13-2012	Include	19
ORD-12-0007	4- 3-2012	Include	19
ORD-12-0008	4- 3-2012	Omit	19
ORD-12-0009	5- 8-2012	Include	19
ORD-12-0010	5-15-2012	Include	19
ORD-12-0011	6-12-2012	Include	20
ORD-12-0012	9- 4-2012	Include	20
ORD-12-0013(Emerg.)	9- 4-2012	Omit	20
ORD-12-0014(Emerg.)	9- 4-2012	Omit	20
ORD-12-0015	9-11-2012	Omit	20
ORD-12-0016(Emerg.)	10-23-2012	Omit	20
ORD-12-0017(Emerg.)	11-13-2012	Include	20
Measure N	11- 6-2012	Include	1
ORD-12-0018(Emerg.)	12- 4-2012	Include	1
ORD-12-0019	12- 4-2012	Include	1
ORD-12-0020	12-11-2012	Include	1
ORD-12-0021(Emerg.)	12-18-2012	Include	1
ORD-13-0001	2-12-2013	Include	1
ORD-13-0002(Emerg.)	3-19-2013	Omit	1
ORD-13-0003	4- 9-2013	Include	1
ORD-13-0004	4-23-2013	Include	1
ORD-13-0005	5-14-2013	Include	2
ORD-13-0006	5-14-2013	Include	2
ORD-13-0007	5-21-2013	Omit	2
ORD-13-0008	5-21-2013	Include	2
ORD-13-0009	7-16-2013	Include	2
ORD-13-0010	7-16-2013	Include	2
ORD-13-0011	8-13-2013	Include	2
ORD-13-0012	8-13-2013	Include	2
ORD-13-0013(Emerg.)	9-10-2013	Omit	3
ORD-13-0014	9- 3-2013	Include	3
ORD-13-0015(Emerg.)	9-10-2013	Omit	3
ORD-13-0016(Emerg.)	10- 1-2013	Omit	3
ORD-13-0017	10- 1-2013	Include	3
ORD-13-0018	10- 1-2013	Include	3
ORD-13-0019	10- 8-2013	Include	3
ORD-13-0020	10- 8-2013	Omit	3
ORD-13-0021	10-15-2013	Omit	3
ORD-13-0022	10-22-2013	Include	3
ORD-13-0023	11- 5-2013	Omit	3
ORD-13-0024	11-12-2013	Include	3
ORD-13-0025	12- 3-2013	Include	4
ORD-13-0026	12- 3-2013	Include	4
ORD-13-0027	12- 3-2013	Include	4

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
ORD-13-0028	12-10-2013	Include	4
ORD-13-0029	12-10-2013	Omit	4
ORD-13-0030	12-17-2013	Include	4
ORD-13-0031	12-17-2013	Include	4
ORD-14-0001	1-14-2014	Include	4
ORD-14-0002	2-11-2014	Include	4
ORD-14-0003	3- 4-2014	Include	5
ORD-14-0004	3-11-2014	Include	5
ORD-14-0005(Emerg.)	5-20-2014	Include	5
ORD-14-0006	6-17-2014	Include	6
ORD-14-0007	7- 8-2014	Include	6
ORD-14-0008	7-22-2014	Include	6
ORD-14-0009	8- 5-2014	Include	6
ORD-14-0010	8- 5-2014	Include	6
ORD-14-0011(Emerg.)	8-12-2014	Omit	6
ORD-14-0012(Emerg.)	9- 2-2014	Omit	7
ORD-14-0013(Emerg.)	9- 2-2014	Omit	7
ORD-14-0014	9- 9-2014	Omit	7
ORD-14-0015	10-14-2014	Include	7
ORD-14-0016	10-14-2014	Include	7
ORD-14-0017	11-11-2014	Include	7
ORD-14-0018	11-11-2014	Omit	7
ORD-14-0019	11-18-2014	Include	7
ORD-14-0020	11-18-2014	Include	7
Measure A	4- 8-2014	Include	8
ORD-14-0021	12- 9-2014	Include	8
ORD-15-0001	1-13-2015	Include	8
ORD-15-0002	1-13-2015	Include	8
ORD-15-0003	1-13-2015	Include	8
ORD-15-0004	2- 3-2015	Include	8
ORD-15-0005	2- 3-2015	Include	8
ORD-15-0006	3- 3-2015	Include	9
ORD-15-0007	3-17-2015	Omit	9
ORD-15-0008	3-17-2015	Include	9
ORD-15-0009	3-24-2015	Include	9
ORD-15-0010	4- 7-2015	Include	9
ORD-15-0011(Emerg.)	4-21-2015	Omit	9
ORD-15-0012	5-19-2015	Omit	10
ORD-15-0013	6- 9-2015	Omit	10
ORD-15-0014	6- 9-2015	Include	10
ORD-15-0015	6-16-2015	Include	10
ORD-15-0016	6-23-2015	Include	10
ORD-15-0017	7-14-2015	Include	10
ORD-15-0018	7-14-2015	Omit	10
ORD-15-0019	7-14-2015	Include	10
ORD-15-0020	8-11-2015	Include	11
ORD-15-0021	8-11-2015	Include	11
ORD-15-0022	8-18-2015	Include	11

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
ORD-15-0023(Emerg.)	9- 8-2015	Omit	11
ORD-15-0024(Emerg.)	9- 8-2015	Omit	11
ORD-15-0025(Emerg.)	9-15-2015	Omit	11
ORD-15-0026	9-22-2015	Omit	11
ORD-15-0027	10-13-2015	Include	11
ORD-15-0028	10-13-2015	Include	11
ORD-15-0029	10-20-2015	Include	12
ORD-15-0030	10-20-2015	Include	12
ORD-15-0031	11-10-2015	Include	12
ORD-15-0032	11-17-2015	Omit	12
ORD-15-0033	11-17-2015	Omit	12
ORD-15-0034	11-17-2015	Omit	12
ORD-15-0035	11-17-2015	Omit	12
ORD-15-0036	11-17-2015	Omit	12
ORD-15-0037	11-17-2015	Include	12
ORD-15-0038	12- 1-2015	Include	12
ORD-15-0039	12- 1-2015	Include	12
ORD-15-0040	12-15-2015	Include	12
ORD-15-0041	12-15-2015	Include	12
ORD-15-0042	12-22-2015	Omit	12
ORD-16-0001	1-19-2016	Include	12
ORD-16-0002	2- 2-2016	Include	13
ORD-16-0003	2- 9-2016	Include	13
ORD-16-0004	3- 8-2016	Include	13
ORD-16-0005	3-22-2016	Include	13
ORD-16-0006	4-19-2016	Omit	13
ORD-16-0007	5-17-2016	Include	14
ORD-16-0008	5-24-2016	Include	14
Measure A	6- 7-2016	Include	14
Measure B	6- 7-2016	Include	14
ORD-16-0009	6-14-2016	Include	14
ORD-16-0010	6-14-2016	Omit	14
ORD-16-0011	6-21-2016	Include	14
ORD-16-0012	6-21-2016	Include	14
ORD-16-0013	6-21-2016	Include	14
ORD-16-0014	6-21-2016	Include	14
ORD-16-0015	6-21-2016	Include	14
ORD-16-0016	7-12-2016	Include	14
ORD-16-0017	8- 2-2016	Include	15
ORD-16-0018(Emerg.)	8-23-2016	Omit	15
ORD-16-0019	8-23-2016	Include	15
ORD-16-0020(Emerg.)	9-13-2016	Omit	15
ORD-16-0021(Emerg.)	9-13-2016	Omit	15
ORD-16-0022	9-20-2016	Omit	15
ORD-16-0023	10-11-2016	Omit	15
Measure MA	11- 8-2016	Include	16
Measure MM	11- 8-2016	Include	16
ORD-16-0024	11-15-2016	Include	16

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
ORD-16-0025	11-22-2016	Include	16
ORD-16-0026	11-22-2016	Include	16
ORD-16-0027	11-22-2016	Include	16
ORD-16-0028	11-22-2016	Include	16
ORD-16-0029	12- 6-2016	Include	16
ORD-16-0030	12- 6-2016	Include	16
ORD-16-0031	12-13-2016	Omit	16
ORD-16-0032	12-20-2016	Omit	16
ORD-17-0001	2-14-2017	Include	16
ORD-17-0002	2-21-2017	Omit	17
ORD-17-0003	3-14-2017	Omit	17
ORD-17-0004	3-14-2017	Omit	17
ORD-17-0005(Emerg.)	4- 4-2017	Omit	17
ORD-17-0006	4- 4-2017	Include	17
ORD-17-0007	4-18-2017	Include	17
ORD-17-0008	5- 2-2017	Include	17
ORD-17-0009	5-16-2017	Omit	17
ORD-17-0010	5-16-2017	Omit	17
ORD-17-0011	7-11-2017	Include	17
ORD-17-0012	8-15-2017	Include	18
ORD-17-0013	8-15-2017	Include	18
ORD-17-0014	8-15-2017	Include	18
ORD-17-0015	8-15-2017	Include	18
ORD-17-0016	8-15-2017	Include	18
ORD-17-0017	8-15-2017	Include	18
ORD-17-0018(Emerg.)	8-22-2017	Include	18
ORD-17-0019(Emerg.)	9- 5-2017	Omit	18
ORD-17-0020(Emerg.)	9- 5-2017	Omit	18
ORD-17-0021	9-12-2017	Omit	18
ORD-17-0022	10- 3-2017	Include	18
ORD-17-0023	10- 3-2017	Omit	18
ORD-17-0024	10-10-2017	Include	18
ORD-17-0025	10-10-2017	Include	18
ORD-17-0026	10-10-2017	Include	18
ORD-17-0027	11-14-2017	Include	19
ORD-17-0028(Emerg.)	12- 5-2017	Omit	19
ORD-17-0029	12-12-2017	Include	19
ORD-17-0030(Emerg.)	12-19-2017	Omit	19
ORD-17-0031	12-19-2017	Include	19
ORD-18-0001	1-23-2018	Omit	19
ORD-18-0002	1-23-2018	Include	19
ORD-18-0003(Emerg.)	3-13-2018	Include	20
ORD-18-0004	3-13-2018	Include	20
ORD-18-0005	3-20-2018	Include	20
ORD-18-0006	3-20-2018	Include	20
ORD-18-0007	4- 3-2018	Omit	20
ORD-18-0008	4- 3-2018	Omit	20
ORD-18-0009	4-17-2018	Omit	20

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
ORD-18-0010	5- 1-2018	Include	21
ORD-18-0011	5- 1-2018	Omit	21
ORD-18-0012	5- 1-2018	Include	21
ORD-18-0013	5- 8-2018	Include	21
ORD-18-0014	5- 8-2018	Include	21
ORD-18-0015	7-10-2018	Include	21
ORD-18-0016	7-10-2018	Include	21
ORD-18-0017	7-10-2018	Omit	21
ORD-18-0018	7-10-2018	Include	21
ORD-18-0019	7-17-2018	Include	21
ORD-18-0020	8- 7-2018	Include	21
ORD-18-0021	8-14-2018	Include	21
ORD-18-0022(Emerg.)	9- 4-2018	Omit	22
ORD-18-0023(Emerg.)	9- 4-2018	Omit	22
ORD-18-0024	9-11-2018	Omit	22
ORD-18-0025	10- 2-2018	Include	22
ORD-18-0026	10- 9-2018	Omit	22
ORD-18-0027	10- 9-2018	Include	22
Measure WW	11- 6-2018	Include	23
ORD-18-0028	11-13-2018	Include	23
ORD-18-0029	12-11-2018	Include	23
ORD-18-0030	12-11-2018	Include	23
ORD-18-0031	12-18-2018	Include	23
ORD-18-0032	12-18-2018	Include	23
ORD-19-0001	1- 8-2019	Include	23
ORD-19-0002	2-12-2019	Omit	24
ORD-19-0003	3-12-2019	Include	24
ORD-19-0004	3-12-2019	Omit	24
ORD-19-0005	4-16-2019	Include	24
ORD-19-0006	4-23-2019	Include	24
ORD-19-0007	4-23-2019	Include	24
ORD-19-0008	4-23-2019	Include	24
ORD-19-0009	5- 7-2019	Omit	24
ORD-19-0010(Emerg.)	5-21-2019	Omit	24
ORD-19-0011	5-14-2019	Include	24
ORD-19-0012	5-14-2019	Omit	24
ORD-19-0013	5-21-2019	Include	24
ORD-19-0014	6-11-2019	Include	25
ORD-19-0015	6-11-2019	Omit	25
ORD-19-0016	7-23-2019	Include	25
ORD-19-0017	8-20-2019	Omit	25
ORD-19-0018(Emerg.)	9- 3-2019	Omit	26
ORD-19-0019	9- 3-2019	Include	26
ORD-19-0020(Emerg.)	9- 3-2019	Omit	26
ORD-19-0021	9-10-2019	Include	26
ORD-19-0022	9-10-2019	Omit	26
ORD-19-0023	10-15-2019	Include	26
ORD-19-0024	10-15-2019	Include	26

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
ORD-19-0025	10-15-2019	Include	26
ORD-19-0026	10-15-2019	Include	26
ORD-19-0027	10-15-2019	Include	26
ORD-19-0028	11- 5-2019	Include	27
ORD-19-0029(Emerg.)	11-12-2019	Include	27
ORD-19-0030	11-12-2019	Omit	27
ORD-19-0031	11-19-2019	Include	27
ORD-19-0032	11-19-2019	Include	27
ORD-19-0033	12- 3-2019	Include	27
ORD-19-0034	12- 3-2019	Include	27
ORD-19-0035(Emerg.)	12-10-2019	Include	27
ORD-20-0001	1- 7-2020	Include	27
ORD-20-0002	1- 7-2020	Include	27
ORD-20-0003	1-21-2020	Include	27
ORD-20-0004	1-21-2020	Include	27
ORD-20-0007(Emerg.)	2-18-2020	Include	28
ORD-20-0008	2-18-2020	Include	28
ORD-20-0009	2-18-2020	Include	28
ORD-20-0010(Emerg.)	3-24-2020	Include	28
ORD-20-0011	4-21-2020	Include	28
ORD-20-0012	4-21-2020	Include	28
Measure A	4-14-2020	Include	29
Measure B	4-14-2020	Include	29
ORD-20-0013(Emerg.)	5-12-2020	Include	29
ORD-20-0014	5-12-2020	Include	29
ORD-20-0015	5-19-2020	Include	29
ORD-20-0016	5-19-2020	Include	29
ORD-20-0017(Emerg.)	5-19-2020	Include	29
ORD-20-0018	5-19-2020	Include	29
ORD-20-0019	5-19-2020	Omit	29
ORD-20-0020(Emerg.)	5-26-2020	Include	29
ORD-20-0021	6-16-2020	Include	29
ORD-20-0022	6-16-2020	Include	29
ORD-20-0023	6-16-2020	Include	29
ORD-20-0024	6-23-2020	Include	29
ORD-20-0025	7- 7-2020	Include	29
ORD-20-0026	7-14-2020	Include	29
ORD-20-0027	7-14-2020	Include	29
ORD-20-0028(Emerg.)	7-29-2020	Include	29
ORD-20-0029	8-18-2020	Omit	29
ORD-20-0030	8-18-2020	Omit	29
ORD-20-0031	8-18-2020	Include	29
ORD-20-0005	2- 4-2020	Omit	30
ORD-20-0006	2- 4-2020	Omit	30
ORD-20-0032	9- 1-2020	Omit	30
ORD-20-0033(Emerg.)	9- 8-2020	Omit	30
ORD-20-0034	9- 8-2020	Include	30
ORD-20-0035	9- 8-2020	Include	30

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
ORD-20-0036	9- 8-2020	Include	30
ORD-20-0037(Emerg.)	9- 8-2020	Omit	30
ORD-20-0038	9-15-2020	Omit	30
ORD-20-0039	10- 6-2020	Omit	30
ORD-20-0040	10- 6-2020	Include	30
ORD-20-0041	10- 6-2020	Include	30
ORD-20-0042	10-20-2020	Include	30
ORD-20-0043(Emerg.)	11- 2-2020	Include	31
ORD-20-0044(Emerg.)	11- 2-2020	Include	31
Measure US	11- 3-2020	Include	31
ORD-20-0045(Emerg.)	12- 8-2020	Include	31
ORD-20-0046	12- 8-2020	Include	31
ORD-20-0047	12- 8-2020	Omit	31
ORD-20-0048	12- 8-2020	Include	31
ORD-20-0049(Emerg.)	12- 8-2020	Include	31
ORD-20-0050	12-15-2020	Include	31
ORD-20-0051	12-15-2020	Include	31
ORD-20-0052	12-15-2020	Include	31
ORD-21-0001	1- 5-2021	Omit	31
ORD-21-0002	1-12-2021	Include	31
ORD-21-0003(Emerg.)	1-19-2021	Include	31
ORD-21-0004(Emerg.)	1-19-2021	Include	31
ORD-21-0005(Emerg.)	1-19-2021	Include	31
ORD-21-0006	2- 2-2021	Include	32
ORD-21-0007	2- 2-2021	Include	32
ORD-21-0008	2- 9-2021	Omit	32
ORD-21-0009	2- 9-2021	Omit	32
ORD-21-0010	2- 9-2021	Omit	32
ORD-21-0011	4-13-2021	Omit	32
ORD-21-0012	4-13-2021	Include	32
ORD-21-0013	4-20-2021	Omit	32
ORD-21-0014	4-20-2021	Omit	32
ORD-21-0015	6- 1-2021	Include	33
ORD-21-0016	6- 1-2021	Omit	33
ORD-21-0017(Emerg.)	6- 8-2021	Include	33
ORD-21-0018	6- 8-2021	Include	33
ORD-21-0019	6- 8-2021	Include	33
ORD-21-0020(Emerg.)	6-15-2021	Omit	33
ORD-21-0021	7- 6-2021	Include	33
ORD-21-0022(Emerg.)	7-13-2021	Include	33
ORD-21-0023	7-13-2021	Include	33
ORD-21-0024	7-20-2021	Omit	33
ORD-21-0025	7-20-2021	Omit	33
ORD-21-0026	7-20-2021	Omit	33
ORD-21-0027	7-20-2021	Include	33
ORD-21-0028	8-10-2021	Include	34
ORD-21-0029(Emerg.)	8-17-2021	Include	34
ORD-21-0030(Emerg.)	8-24-2021	Omit	34

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
ORD-21-0031(Emerg.)	9- 7-2021	Omit	34
ORD-21-0032	9- 7-2021	Omit	34
ORD-21-0033	9-14-2021	Include	34
ORD-21-0034	10- 5-2021	Include	34
ORD-21-0035	10- 5-2021	Include	34
ORD-21-0036	11- 9-2021	Include	35
ORD-21-0037	11- 9-2021	Omit	35
ORD-21-0038	11-16-2021	Include	35
ORD-21-0039(Emerg.)	12- 7-2021	Include	35
ORD-21-0040	12- 7-2021	Include	35
ORD-21-0041(Emerg.)	12- 7-2021	Include	35
ORD-22-0001	1- 4-2022	Include	35
ORD-22-0002	2- 8-2022	Include	35
ORD-22-0003(Emerg.)	2- 8-2022	Include	35
ORD-22-0004	2-15-2022	Include	36
ORD-22-0005	2-15-2022	Include	36
ORD-22-0006	2-15-2022	Include	36
ORD-22-0007	2-15-2022	Include	36
ORD-22-0008	3- 8-2022	Include	36
ORD-22-0009	3- 8-2022	Include	36
ORD-22-0010	3- 8-2022	Include	36
ORD-22-0011	3-15-2022	Include	36
ORD-22-0012	3-15-2022	Include	36
ORD-22-0015	5-24-2022	Include	37
ORD-22-0016(Emerg.)	6-14-2022	Omit	37
ORD-22-0017	7- 5-2022	Omit	37
ORD-22-0018	7- 5-2022	Omit	37
ORD-22-0019	7- 5-2022	Include	37
ORD-22-0020	8- 2-2022	Include	38
ORD-22-0021	8- 9-2022	Include	38
ORD-22-0022	8-16-2022	Include	38
ORD-22-0023	9- 6-2022	Include	38
ORD-22-0024	9- 6-2022	Omit	38
ORD-22-0025	9- 6-2022	Omit	38
ORD-22-0026(Emerg.)	9- 6-2022	Omit	38
ORD-22-0027	9-13-2022	Omit	38
ORD-22-0028(Emerg.)	10-11-2022	Omit	38
ORD-22-0029	11-15-2022	Include	39
ORD-22-0030	11-15-2022	Include	39
ORD-22-0031	11-15-2022	Include	39
ORD-22-0032	11-15-2022	Include	39
ORD-22-0034	11-15-2022	Include	39
ORD-22-0035	12- 6-2022	Include	39
ORD-22-0036	12- 6-2022	Omit	39
ORD-22-0037	12- 6-2022	Omit	39
ORD-22-0038	12- 6-2022	Omit	39
ORD-22-0039	12- 6-2022	Omit	39
ORD-23-001(Emerg.)	1-10-2023	Include	39

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
ORD-22-0033	11-15-2022	Include	40
ORD-23-0002	1-24-2023	Include	40
ORD-23-0003(Emerg.)	1-24-2023	Include	40
ORD-23-0004	2- 7-2023	Omit	40
ORD-23-0005	2- 7-2023	Omit	40
ORD-23-0006	2- 7-2023	Omit	40
ORD-23-0007	2- 7-2023	Omit	40
ORD-23-0008	2- 7-2023	Include	40
ORD-23-0009	2-14-2023	Omit	40
ORD-23-0010	2-21-2023	Include	40
ORD-23-0011	3- 7-2023	Omit	41
ORD-23-0012	3- 7-2023	Include	41
ORD-23-0013	3- 7-2023	Include	41
ORD-23-0014	3-21-2023	Include	41
ORD-23-0015	3-21-2023	Include	41
ORD-23-0016	3-21-2023	Include	41
ORD-23-0017	4-11-2023	Include	41
ORD-23-0018	4-18-2023	Omit	41
ORD-23-0019	4-18-2023	Include	41
ORD-23-0020	5- 2-2023	Include	41
ORD-23-0021	5- 9-2023	Include	41
ORD-23-0022	5- 9-2023	Include	41
ORD-23-0023	5- 9-2023	Omit	41
ORD-23-0024	5-16-2023	Include	41
ORD-23-0025	5-23-2023	Include	42
ORD-23-0026	6- 6-2023	Include	42
ORD-23-0027	6-13-2023	Include	42
ORD-23-0028	6-20-2023	Include	42
ORD-23-0029	8- 1-2023	Include	42
ORD-23-0030	8- 1-2023	Omit	42
ORD-23-0031	8-15-2023	Include	43
ORD-23-0032	8-15-2023	Include	43
ORD-23-0033(Emerg.)	9- 5-2023	Omit	43
ORD-23-0034(Emerg.)	9- 5-2023	Omit	43
ORD-23-0035	9-12-2023	Omit	43
ORD-23-0036	10- 3-2023	Include	43
ORD-23-0037	10-10-2023	Include	43
ORD-23-0038	11-14-2023	Include	44
ORD-23-0039	11-14-2023	Include	44
ORD-23-0040	11-14-2023	Include	44
ORD-23-0041	11-14-2023	Include	44
ORD-23-0042	11-14-2023	Include	44
ORD-23-0043	11-14-2023	Include	44
ORD-23-0044	11-14-2023	Include	44
ORD-23-0045	11-14-2023	Include	44
ORD-23-0046	11-14-2023	Include	44
ORD-23-0047	11-14-2023	Include	44
ORD-23-0048	11-14-2023	Include	44

Legislation	Date Adopted	Include/ Omit	Supp. No.
ORD-23-0049	11-14-2023	Include	44
ORD-23-0050	12-19-2023	Include	44
ORD-23-0051	12-19-2023	Include	44
ORD-23-0052	12-19-2023	Include	44
ORD-24-0001(Emerg.)	1-16-2024	Omit	44
ORD-24-0002	1-23-2024	Include	44
ORD-24-0003	1-23-2024	Include	44
ORD-24-0004	2-13-2024	Include	45
ORD-24-0005	2-20-2024	Include	45
ORD-24-0006	2-20-2024	Omit	45
ORD-24-0007	3-12-2024	Omit	45
ORD-24-0008	4- 2-2024	Include	45
ORD-24-0009	4-16-2024	Include	45
ORD-24-0010	4-23-2024	Omit	45
Measure RW	3- 5-2024	Include	46
ORD-24-0011(Emerg.)	5-14-2024	Include	46
ORD-24-0012	9-10-2024	Omit	47
ORD-24-0013	9-10-2024	Omit	47
ORD-24-0014	9-17-2024	Omit	47
ORD-24-0015	10- 1-2024	Include	47
ORD-24-0016	10- 1-2024	Omit	47
ORD-24-0017	10- 1-2024	Omit	47
ORD-24-0018	10- 8-2024	Include	47
ORD-24-0019	11-12-2024	Omit	47
ORD-24-0020	11-19-2024	Include	47
ORD-24-0021	11-19-2024	Include	47
ORD-24-0022	11-19-2024	Include	47
ORD-24-0023	11-19-2024	Include	47
ORD-24-0024	12-10-2024	Include	47
ORD-24-0025	12-10-2024	Include	47
ORD-24-0026	12-10-2024	Include	47
ORD-24-0027	12-12-2024	Include	47
ORD-24-0028	12-17-2024	Omit	47
ORD-24-0029	12-17-2024	Omit	47
ORD-24-0030	12-17-2024	Include	47
ORD-24-0031	12-17-2024	Omit	47
ORD-24-0032	12-17-2024	Include	47
ORD-24-0033	12-17-2024	Include	47
Measure LB	11- 5-2024	Include	48
ORD-25-0001	2-11-2025	Include	48
ORD-25-0002	3- 4-2025	Omit	48
ORD-25-0003	3-18-2025	Include	48
ORD-25-0004	4- 1-2025	Include	48
ORD-25-0005	4-22-2025	Include	48
ORD-25-0006	4-22-2025	Include	48
ORD-25-0007	6-10-2025	Omit	49
ORD-25-0008	8- 5-2025	Include	49
ORD-25-0009	8-12-2025	Include	49

Legislation	Date Adopted	Include/ Omit	Supp. No.
ORD-25-0010	8-12-2025	Include	49
ORD-25-0011	8-19-2025	Include	49
ORD-25-0012	8-19-2025	Omit	49
ORD-25-0013	8-19-2025	Include	49
ORD-25-0014	8-19-2025	Include	49
ORD-25-0015	8-19-2025	Include	49
ORD-25-0016	9- 2-2025	Omit	50
ORD-25-0017(Emerg.)	9- 9-2025	Omit	50
ORD-25-0018	9-16-2025	Omit	50
ORD-25-0020	11-18-2025	Include	50
ORD-25-0019	11-11-2025	Include	51
ORD-25-0021	12- 2-2025	Omit	51
ORD-25-0022	12-16-2025	Omit	51
ORD-25-0023	12-16-2025	Omit	51
ORD-26-0001	1- 6-2026	Include	51
ORD-26-0002	1-13-2026	Omit	51
ORD-26-0003	2- 3-2026	Omit	51
ORD-26-0004	2- 3-2026	Include	51
ORD-26-0005	3-10-2026	Include	51
ORD-26-0006	4- 7-2026	Include	52
ORD-26-0007	4- 7-2026	Include	52
ORD-26-0008	4-21-2026	Include	52
ORD-26-0009	4-21-2026	Include	52
ORD-26-0010	4-21-2026	Include	52
ORD-26-0011	5- 5-2026	Include	52
ORD-26-0012	5- 5-2026	Include	52
ORD-26-0013	5- 5-2026	Include	52
ORD-26-0014	6- 9-2026	Include	52
ORD-26-0015	6-16-2026	Include	52
ORD-26-0016	6-16-2026	Omit	52
ORD-26-0017	6-16-2026	Include	52
ORD-26-0018	6-16-2026	Include	52
ORD-26-0019	6-16-2026	Omit	52
ORD-26-0020	6-16-2026	Omit	52
ORD-26-0021	8-11-2026	Omit	52
ORD-26-0022	8-18-2026	Include	52

VOLUME I

Title 1

GENERAL PROVISIONS

Chapter 1.04 Code Adoption

1.04.010 Contents and purpose.
1.04.020 Adoption.
1.04.030 Title—Citation—Reference.
1.04.050 Continuity.
1.04.060 Reference applies to all amendments.
1.04.070 Title, chapter and section headings.
1.04.080 Reference to specific ordinances.
1.04.090 Effect of Code on past actions and obligations.
1.04.100 Initiative ordinances.
1.04.110 Distribution of Code.
1.04.120 Maintenance of Code.
1.04.130 Repeal.
1.04.140 Validity of Code.
1.04.150 Effective date.

Chapter 1.08 General Provisions

1.08.010 Construction.
1.08.020 Territorial jurisdiction.
1.08.030 Reference to ordinances or Charter.
1.08.040 Reference includes amendments and penalties.
1.08.050 Reference applies to amendments.
1.08.060 Effect of headings.
1.08.070 Acts by deputy.
1.08.080 Notice—Service method.
1.08.090 Notice—Proof of service.
1.08.100 Sundays and holidays.
1.08.110 Writing defined.
1.08.120 Prohibited acts include causing or permitting.
1.08.130 Definitions.
1.08.140 Reference to Bureau of Franchises.
1.08.150 Gender references.

Chapter 1.12 City Seal

1.12.010 Designated.

Chapter 1.14 Flag Protocols

1.14.010 Flying flag at half-staff.
1.14.020 Death of member of military, public safety officer or elected official.
1.14.030 Presentation of City flag.

Chapter 1.15 Municipal Elections

Division I. General Provisions

1.15.010 Definitions.
1.15.020 General.
1.15.030 Severability.
1.15.040 CEQA.

Division II. Election Procedures

1.15.110 Examination of ballots on recount.
1.15.115 Partial recounts.
1.15.120 Officially ordered recount.
1.15.130 Change of ballot designation.
1.15.140 Candidates' statements.
1.15.150 Elections in which no one or only one candidate files nomination papers.

Division III. Referenda and Initiative

Subdivision I. Referenda and Initiative Generally

1.15.210 Contents of petitions.
1.15.220 General procedures.
1.15.230 Filing fee.

Subdivision II. Campaign Disclosure Statements—Measure Committees.

1.15.310 Purpose.
1.15.320 Definitions.
1.15.330 Statement of organization.
1.15.340 Campaign statements—Filing requirements.
1.15.350 Campaign statement—Contents.
1.15.360 Report of contributions in excess of one thousand dollars.
1.15.370 Violations and penalties.

Division IV. Voter's Pamphlet

1.15.410 Procedure established.
1.15.415 Appointment of representatives.

1.15.420 Setting time limits.
1.15.425 Rebuttal.
1.15.430 Identification of representatives.
1.15.440 Printing and mailing.
1.15.445 Organization of material.
1.15.450 Arguments in ballot order.
1.15.455 Impartial analysis.
1.15.460 Charter amendments.
1.15.465 Effect of failure to comply.
1.15.470 Time limits on challenges to ballot materials—General elections.
1.15.480 Time limits on challenges to ballot materials— primary and special elections.

Division V. Candidates

1.15.510 Nominating petitions.
1.15.520 Candidate statement.
1.15.530 Mass mailings.

Division VI. Electronic Campaign Disclosure Statements

1.15.610 Electronic filing of campaign disclosure statements.
1.15.620 Penalties.

Chapter 1.16 Datum Plane

1.16.010 Adopted.

Chapter 1.20 Political Districts

1.20.010 Districts established.
1.20.020 Final map maintained on City internet webpage.

Chapters 1.21, 1.22 Reserved

Chapters 1.24—1.26 Reserved

Chapter 1.27 School Board Districts

1.27.010 Districts established.

Chapter 1.28 Record Retention

1.28.010 Records survive transition of officials.
1.28.020 Schedules.
1.28.030 Destruction—Approval required.
1.28.040 Destruction—Duplicate records.

Chapter 1.32 General Penalty

1.32.010 Criminal violations—Misdemeanors and infractions.

1.32.020 Infractions.

1.32.030 Citation in lieu of arrest.

1.32.040 Failure to obtain or exceeding limits of license or permit—Grounds for suspension, revocation or denial.

1.32.050 Working prisoners.

1.32.060 Infraction procedures.

CHAPTER 1.04 CODE ADOPTION*

1.04.010 Contents and purpose.

The purpose of this recodification is to reorganize and renumber the provisions of the existing Long Beach Municipal Code, and, without making any significant substantive changes thereto, to restate, reenact and continue in full force and effect the provisions of the existing Long Beach Municipal Code, as amended, which codifies and publishes in consolidated form those ordinances of the City governing the establishment of certain offices and boards; the conduct of City government; organization to cope with disasters; fire prevention; police and traffic regulation; public safety; public welfare; public works; buildings and signs; prohibition of certain defined acts, and punishment for violation of Code provisions; regulation, control and licensing of businesses, trades, professions and other occupations; health and sanitation regulations; oil production; use of land in the City; municipal gas service and rates; regulation of City streets; operation of public facilities; and other matters of general interest. (Ord. C-5831 § 1 (part), 1982)

1.04.020 Adoption.

The City of Long Beach adopts the ordinance codified in this Chapter and the recodified Long Beach Municipal Code consisting of Titles 1 through 21, inclusive, together with those secondary codes referenced therein, except those portions of the secondary codes as are deleted or modified by the provisions of this recodified Municipal Code, as a recodification of the existing comprehensive Long Beach Municipal Code. (Ord. C-5831 § 1 (part), 1982)

1.04.030 Title—Citation—Reference.

This recodified Code shall be known as the "Long Beach Municipal Code" and it shall be sufficient to refer to said Code as the "Long Beach Municipal Code" in any prosecution for the violation of any provision thereof or in any proceeding at law or equity. It shall be sufficient to designate any ordinance adding to, amending, correcting or repealing all or any part or portion thereof as an addition to, amendment to, correction or repeal of the "Long Beach Municipal Code." Further reference may be made to the titles, chapters, sections and subsections of the Long Beach Municipal Code and such references shall apply to that numbered title, chapter, section or subsection as it appears in this Code. (Ord. C-5831 § 1 (part), 1982)

1.04.050 Continuity.

The provisions of this recodification, insofar as they are substantially the same as ordinance provisions previously adopted by the City relating to the same subject matter, shall be construed as restatements, reenactments and continuations of such provisions, and not as new enactments. (Ord. C-5831 § 1 (part), 1982)

1.04.060 Reference applies to all amendments.

Whenever a reference is made to this Code as the "Long Beach Municipal Code," or to any portion thereof, or to any ordinance of the City of Long Beach, the reference shall apply to all amendments, corrections and additions heretofore, now or hereafter made. (Ord. C-5831 § 1 (part), 1982)

1.04.070 Title, chapter and section headings.

The title, chapter and section headings contained herein shall not be deemed to govern, limit, modify or in any manner affect the scope, meaning or intent of the provisions of any title, chapter or section hereof. (Ord. C-5831 § 1 (part), 1982)

1.04.080 Reference to specific ordinances.

The provisions of this recodified Municipal Code shall not in any manner affect matters of record which refer to, or are otherwise connected with, ordinances which are therein specifically designated by number, or otherwise, and which are included within the Code, but such reference shall be construed to apply to the corresponding provi-

*State law references—Provisions authorizing cities to codify their ordinances; Gov. C. §§ 50022.1—50022.8 and 50022.10.

sions contained within this Code. (Ord. C-5831 § 1 (part), 1982)

1.04.090 Effect of Code on past actions and obligations.

Neither the adoption of this recodification of the Long Beach Municipal Code nor the repeal or amendment hereby of any ordinance or part or portion of any ordinance of the City shall in any manner affect the prosecution for violations of ordinances, which violations were committed prior to the effective date hereof, nor be construed as a waiver of any license, fee, or penalty at said effective date due and unpaid under such ordinances, nor be construed as affecting any of the provisions of such ordinances relating to the collection of any such license, fee, or penalty, or the penal validity of any bond or cash deposit in lieu thereof required to be posted, filed or deposited pursuant to any ordinance and all rights and obligations thereunder appertaining shall continue in full force and effect. (Ord. C-5831 § 1 (part), 1982)

1.04.100 Initiative ordinances.

To coordinate all related provisions of the law, initiative ordinances are included in this Code and given code section numbers. In each such case, the character of the ordinance as an initiative ordinance is indicated in the heading of the chapter or section. This coordination of initiative ordinances with the Code does not alter their character as such. Any violation of the provisions of an initiative ordinance is punishable as provided therein, rather than under the general penal clause of this Code. (Ord. C-5831 § 1 (part), 1982)

1.04.110 Distribution of Code.

Not less than three bound copies of this Code shall be filed for use and examination by the public in the office of the City Clerk. At least three copies permanently bound and duly certified to by the City Clerk shall be maintained on file in the Clerk's office. Additional copies shall be prepared in looseleaf form and shall be mounted in suitable binders. Copies of the Code and material printed for use therewith shall be distributed as follows: one to each officer and department or bureau head of the City; one to each assistant or other employee in each office, department or bureau of the City as the head thereof may designate; one to the City public library and one to each branch thereof. The Mayor, the City Manager, the City Attorney and the City Clerk are authorized to furnish suitably bound copies of this Code and printed matter to other cities on a reciprocal courtesy basis. In addition, copies of the Code and printed matter, with or without a binder or maintenance service, shall be sold to the general public at a price to be fixed by the City Clerk. The purchaser shall have the option of ordering the Code and printed matter with or without the binder or maintenance service. Distribution and sale of the Code and printed matter shall be made by the City Clerk. The City Clerk shall keep a record of the distributees and purchasers. Various portions of the Code and printed matter may also be printed separate and apart from the whole thereof, and sold, either with or without a binder and with or without maintenance service at prices to be fixed by the Clerk. (Ord. C-5831 § 1 (part), 1982)

1.04.120 Maintenance of Code.

Whenever the Council adopts an amendment or adds to this Code or repeals any of its provisions, or whenever the table of contents or index is amended, the City Clerk shall cause the looseleaf pages of the Code in which changes have been made to be reprinted as required, showing the changes. A notation as to the ordinance, if any, and the date of adoption thereof, by which such changes are adopted, shall be made by the City Clerk in the bound volumes of the Code on file in the Clerk's office including the number of the ordinance pursuant to which such action is taken. Duly certified copies of every ordinance making changes in the Code shall be filed in the office of the City Clerk in books for such purpose, duly indexed for ready reference. The City Clerk shall cause copies of each and every reprint to be distributed to each distributee and to every purchaser of the Code who has ordered and paid for maintenance service.

At least twice yearly, and particularly in June and December of each year, the City Clerk shall cause the looseleaf pages of the Code in which changes have been made to be reprinted, including the notation as to the ordinance number pursuant to which such change is adopted, in order that at least twice yearly the looseleaf copies of such Code prepared for the use and convenience of the officers and employees of the City and the general public may be brought up to date. (Ord. C-5831 § 1 (part), 1982)

1.04.130 Repeal.

Ordinance No. C-3600, as amended, and all ordinances or portions of ordinances in conflict with the provisions of this recodified Municipal Code or covering subject matter included within this Code, are repealed and shall be superseded by this recodification. (Ord. C-5877 § 3, 1982: Ord. C-5836 § 2, 1982: Ord. C-5831 § 1 (part), 1982)

1.04.140 Validity of Code.

If any section, subsection, sentence, clause, phrase or portion of this recodified Municipal Code is for any reason held to be invalid or unconstitutional by the final decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Code. The Council declares that it would have adopted this Code and each section, subsection, sentence, clause, phrase, or portion thereof, irrespective of the fact that any one or more sections, subsections, phrases, or portions be declared invalid or unconstitutional. If for any reason this Code or any part thereof should be declared invalid or unconstitutional, then the original ordinance or ordinances which this recodified Municipal Code, or part thereof, supersedes shall be in full force and effect. (Ord. C-5831 § 1 (part), 1982)

1.04.150 Effective date.

This recodified Municipal Code shall become effective on the date the ordinance adopting this Code as the "Long Beach Municipal Code" shall become effective. (Ord. C-5831 § 1 (part), 1982)

CHAPTER 1.08 GENERAL PROVISIONS

1.08.010 Construction.

Unless the provisions of the context otherwise require, these general provisions, rules of construction and definitions shall govern the construction of this Code. The provisions of this Code and all proceedings under it are to be construed with a view to effect its objects and to promote justice. (Prior code § 1300)

1.08.020 Territorial jurisdiction.

This Code shall refer only to the omission or commission of acts within the territorial limits of the City and to that territory outside of the City over which the City has jurisdiction or control by virtue of the Constitution, or any law. (Prior code § 1302)

1.08.030 Reference to ordinances or Charter.

Any reference to an ordinance or a Charter in this Code, shall mean such ordinance or Charter of the City of Long Beach unless otherwise specifically provided. (Prior code § 1303)

1.08.040 Reference includes amendments and penalties.

Any reference in this Code to an ordinance or provision of this Code shall mean such ordinance or provision as now, or hereafter, amended. Reference to any section of this Code shall be understood to refer to and include the penalty section relating thereto unless otherwise expressly provided. In case of the amendment of any section of this Code containing provisions for which a penalty is provided in another section, the penalty so provided in such other section shall be held to relate to the section so amended whether reenacted in the amendatory ordinance or not, unless such penalty is specifically repealed therein. (Prior code § 1304)

1.08.050 Reference applies to amendments.

Whenever a reference is made to any portion of this Code, or to any ordinance of this City, the

reference applies to all amendments and additions now or hereafter made. (Prior code § 1308)

1.08.060 Effect of headings.

The headings of articles, chapters, parts, divisions, subdivisions and sections contained in this Code shall not be deemed to govern, limit, modify or in any manner affect the scope, meaning or intent of the provisions of any article, chapter, part, division, subdivision or section. (Prior code § 1301)

1.08.070 Acts by deputy.

Whenever a power is granted to, or a duty is imposed upon a public officer, or employee, the power may be exercised, or the duty may be performed by a deputy of such officer or employee or by a person otherwise duly authorized pursuant to law or ordinance, unless this Code expressly provides otherwise. (Prior code § 1306)

1.08.080 Notice—Service method.

Whenever a notice is required to be given under this Code, unless different provisions are otherwise specifically made in this Code, such notice may be given either by personal delivery thereof to the person to be notified or by deposit in the United States mail, in a sealed envelope, postage prepaid, addressed to such person to be notified, at his last known business or residence address as the same appears in the public records of the City or other records pertaining to the matter to which such notice is directed. Service by mail shall be deemed to have been completed at the time of deposit in the post office or any United States mailbox. (Prior code § 1310)

1.08.090 Notice—Proof of service.

Proof of giving any notice may be made by the certificate of any officer or employee of this City or by affidavit of any person over the age of eighteen (18) years which shows service in conformity with this Code or other provisions of law applicable to the subject matter concerned. (Prior code § 1311)

1.08.100 Sundays and holidays.

Whenever a date fixed by this Code for the doing or performing of an act falls on Sunday or a holiday, the next succeeding business day shall be considered to be the date fixed by this Code for the doing or performing of that act. (Prior code § 1309)

1.08.110 Writing defined.

Writing includes any form of recorded message capable of comprehension by ordinary visual means. Whenever any notice, report, statement, application or record required or authorized by this Code is made it shall be made in writing in the English language unless it is expressly provided otherwise. (Prior code § 1307)

1.08.120 Prohibited acts include causing or permitting.

Whenever in this Code any act or omission is made unlawful, it shall include causing, permitting, aiding, abetting, suffering or concealing such act or omission. (Prior code § 1305)

1.08.130 Definitions.

The following words and phrases, whenever used in this Code, shall be construed as defined in this Section unless from the context a different meaning is specifically defined and more particularly directed to the use of such words or phrases:

A. "Business" includes businesses, professions, trades and occupations, and all and every kind of calling.

B. "City" means the City of Long Beach or the area within the territorial City limits of the City of Long Beach and such territory outside of this City over which the City has jurisdiction or control by virtue of any constitutional or Charter provision, or any law.

C. "City Attorney" or "Attorney" means the City Attorney of this City or such other official as hereafter may, by law, be designated as the official legal adviser of this City.

D. "City Auditor" or "Auditor" means the City Auditor of this City or such person as here-

after may, by law, be authorized to perform for the City the duties ordinarily incident to the office of an official auditor.

E. "City Clerk" or "Clerk" means the City Clerk of this City or such person as hereinafter may, by law, be authorized to perform the duties now being performed by that official.

F. "City Manager" or "Manager" means the City Manager of this City or his successor as chief executive officer of the City.

G. "Council" means the City Council of this City.

H. "County" is the County of Los Angeles.

I. "Engage in" includes commence, engage in, carry on, conduct, maintain, manage and operate.

J. "Fiscal year" means the year commencing with July 1st and ending the following June 30th.

K. "Goods" includes wares or merchandise.

L. "License fee" includes any charge imposed for a license, whether the object be regulation or revenue, or both regulation and revenue.

M. "May" is permissive.

N. "Oath" includes affirmation.

O. "Office." The use of the title of any officer, employee or office means such officer, employee or office of the City of Long Beach unless otherwise specifically designated.

P. "Operate" includes carry on, keep, conduct or maintain.

Q. "Owner" applied to a building or land, includes any part owner, joint owner, tenant, tenant in common, or joint tenant, of the whole or a part of such building or land.

R. "Person" means any natural person, firm, association, joint venture, joint stock company, partnership, organization, club, company, corporation, business trust or the manager, lessee, agent, servant, officer or employee or any of them, except as otherwise provided in this Code, or where the context clearly requires a different meaning.

S. "Sale" includes any sale, exchange, barter or offer for sale.

T. "Shall" and "must". Each is mandatory.

U. "State" is the State of California.

V. "Street" includes all streets, highways, avenues, lanes, alleys, courts, places, squares, sidewalks, parkways, curbs, or other public ways in this City which have been or may hereafter be dedicated and open to public use, or such other public property so designated in any law of this State.

W. "Tenant" or "occupant" applied to a building or land includes any person who occupies the whole or part of such building or land, whether alone or with others.

X. "Vote, approval or consent." Except as may be otherwise provided in connection therewith, the phrase "vote, approval or consent of the Council or other body" means the affirmative vote of a majority of those members present at a meeting having a quorum in attendance. Whenever said phrase refers to the members of the Council or other body rather than to the Council or body as such, the vote required shall be in relation to the total membership rather than to those members present at the meeting. (Prior code § 1400)

1.08.140 Reference to Bureau of Franchises.

Any reference in this Code to Bureau of Franchises, Bureau of Franchises and Utilities, Bureau of Franchises and Public Utilities or Bureau in the context of franchises and utilities shall be deemed to mean the City Council. Any reference in this Code to Secretary of the Bureau of Franchises and Public Utilities, Chief Engineer of the Bureau, Chief Engineer-Secretary or Engineer of the Bureau in the context of franchises and utilities shall be deemed to mean the City Manager or his designee. (Ord. C-5792 § 1, 1981: prior code § 1312)

1.08.150 Gender references.

Any gender reference in this Code shall be deemed neutral and inclusive in form and context. (ORD-22-0002 § 1, 2022)

CHAPTER 1.12 CITY SEAL*

1.12.010 Designated.

The seal of the City shall consist of a circular disk with a design cut thereon showing the "Queen

***Charter reference**—Charter provisions regarding the City seal, see the City Charter.

of the Beaches" seated on her throne in the foreground, scepter in hand, with the California "golden bear" at her feet with the horn of plenty pouring forth agricultural and manufactured products while perpetual sunshine lights the heavens where an airplane soars. There are also shown the mountains and sea, a ship, the auditorium, the Rainbow pier and yachts offshore as well as a lighthouse, breakwater and docks, together with a railroad locomotive, factories, refineries and oil wells. Also included are a beach, the book of knowledge and a lamp of wisdom. Surrounding the whole is a gold band upon which appear the words "City Of Long Beach Incorporated 1897". An imprint of the seal is shown herewith. (Prior code § 1500)

CHAPTER 1.14 FLAG PROTOCOLS

1.14.010 Flying flag at half-staff.

The City of Long Beach shall lower national, State and municipal flags to half-staff in the manner prescribed and on the occasions enumerated by the United States Code Title 4, Chapter 1, Section 7, California Code Sections 430 through 439, and all other relevant State and federal laws. (ORD-07-0034 § 1 (part), 2007)

1.14.020 Death of member of military, public safety officer or elected official.

The City of Long Beach shall also lower national, State and municipal flags to half-staff in conformity with the then existing protocols as established by the Governor of California in the event of the death of a member of the military, peace officer or firefighter residing or stationed in Long Beach and any past or present federal, State or municipal elected official representing any part of Long Beach. (ORD-07-0034 § 1 (part), 2007)

1.14.030 Presentation of City flag.

A. In the event of the death of a member of the military, peace officer or firefighter residing or stationed in Long Beach and any past or present federal, State or municipal elected official representing any part of Long Beach, and in accordance with the wishes of the primary next of kin, the Mayor or authorized representative may present the official flag of the City of Long Beach to the primary next of kin of these deceased.

B. The presentation shall be made at an appropriate time and not interfere with a military honors funeral, or supersede any military or federal protocols. The order of the primary next of kin is as follows:

1. Any person designated by the deceased as their next of kin;

2. Spouse;

3. Sons or daughters in the order of age, oldest first;

4. Oldest parent, unless legal custody was granted to another person;

5. Blood or adoptive relative granted legal custody;

6. Brothers or sisters in the order of age, oldest first;

7. Oldest grandparent;

8. Other relative in accordance with laws of deceased's domicile;

9. Close friends and/or associates.

C. When the official flag of the City of Long Beach is presented it shall be presented outside of a flag box and folded in the standard manner for an American flag—triangular shape with a portion of the City emblem showing and ends tucked. (ORD-07-0034 § 1 (part), 2007)

CHAPTER 1.15 MUNICIPAL ELECTIONS*

DIVISION I. GENERAL PROVISIONS

1.15.010 Definitions.

For purpose of this Chapter, the following words and phrases shall have the meanings set forth as follows unless the contrary is stated or clearly appears from the content:

A. "Campaign statement" means an itemized report which is prepared on a form required by the City Clerk and which provides the information required by this Chapter.

B. "Contribution" shall have the same meaning as set forth in California Government Code Section 82015, and any regulations promulgated thereunder, as it reads now and as it may be amended.

C. "Election" means any primary, general, special or runoff election held in the City, including an initiative, referendum or recall election.

D. "Mass mailing" means two hundred (200) or more substantially similar tangible items. "Mass mailing" does not include e-mails, website or social media postings, text messages, and recorded telephone messages or robocalls. "Mass mailing" does not include any of the following mailings so long as the mailing complies with the requirements in Subsection 1.15.530 of this Chapter:

1. Mail which is sent in response to an unsolicited letter or other inquiry; or

2. Any announcement, notice or invitation to an officeholder's constituents concerning a public meeting which is directly related to the officeholder's incumbent governmental duties, which is to be held by the officeholder and which the officeholder intends to attend; or

3. Any announcement, notice or invitation to any official City event or events for which the City is providing its facilities, its staff or other financial support; or

4. Business cards that do not contain more than one mention of the officeholder's name.

E. "Officeholder" means all elected City officers.

F. "Measure" means any City Charter amendment, ordinance or any other City proposition, including any amendment to such propositions, submitted to a popular vote at an election, whether by initiative, referendum or recall procedure or otherwise, or circulated for the purposes of submission to a popular vote at any election, whether or not the proposition qualifies for the ballot. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.020 General.

Candidates elected to office shall assume such office on the third Tuesday in December, or such later date if additional time is required to canvass and certify election results, and shall serve until the election and qualification of their successors. Only those elected offices which become vacant shall be filled on the third Tuesday of December of that year. (ORD-25-0003 § 2, 2025; ORD-23-0049 § 2(Exh. A), 2023)

1.15.030 Severability.

If any section, subsection, division, subdivision, paragraph, sentence, clause, or phrase in this Chapter or any part thereof is for any reason held to be unconstitutional or invalid or ineffective by any court of competent jurisdiction, such decision shall not affect the validity or effectiveness of the remaining portions of this Chapter or any part thereof. The City Council hereby declares that it would have passed each section, subsection, division, subdivision, paragraph, sentence, clause, or phrase thereof irrespective of the fact that any one or more sections, subsections, divisions, subdivisions, paragraphs, sentences, clauses, or phrases be declared unconstitutional, or invalid, or ineffective. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.040 CEQA.

This Chapter is exempt from the requirements of the California Environmental Quality Act (CEQA) because it is not a project within the

*Editor's note—ORD-23-0049, § 2(Exh. A), adopted Dec. 5, 2023, amended Ch. 1.15 in its entirety to read as herein set out. Former Ch. 1.15, §§ 1.15.010—1.15.070, pertained to similar subject matter, and derived from: ORD-19-0001 § 3, 2019.

meaning of 14 CCR § 15378 or alternatively, because it is covered by the general rule that CEQA applies only to projects which the potential for causing a significant effect on the environment (14 CCR § 15061(b)(3)). This Chapter implements changes to the timing of municipal elections that have no potential for direct or indirect changes to the environment. (ORD-23-0049 § 2(Exh. A), 2023)

DIVISION II. ELECTION PROCEDURES

1.15.110 Examination of ballots on recount.

Notwithstanding the provisions of the California Elections Code, including Section 15630, all ballots, whether voted or not, and any other relevant material, shall be examined as part of any municipal election recount. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.115 Partial recounts.

Notwithstanding any provision of the California Elections Code, any voter may request a partial recount in which the ballots for a selected number of precincts are examined. Notwithstanding the above, any recount which is not completed by counting the votes in each and every precinct in the jurisdiction within which votes were cast on the candidates for the office or on the measure in question shall be null and void. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.120 Officially ordered recount.

The City Clerk shall order a full recount of the ballots in any municipal election wherein the difference between the two (2) candidates receiving the most votes is one-half (½) of one percent (1%) or less and the difference in the absolute vote is fifty (50) votes or less. The City shall pay all attendant costs. This Section is intended to supplement those provisions of the California Elections Code relating to recount. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.130 Change of ballot designation.

A. No ballot designation given by a candidate shall be changed by the candidate after the date for filing nomination documents, except as specifically provided in this Section or California Elections Code Section 13107.

B. Ballot designations shall remain the same for all purposes of both the primary and general election, unless a candidate, at least seven (7) days after the date of the primary election, requests in writing to the City Clerk an alternate designation for the general election which the candidate is entitled to use at the time of the request. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.140 Candidates' statements.

Notwithstanding the provisions of the California Elections Code, candidates' statements, as defined in California Elections Code Section 13307, for candidates in any municipal election shall be filed with the City Clerk by the deadline required by the Los Angeles County Registrar-Recorder/ County Clerk. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.150 Elections in which no one or only one candidate files nomination papers.

A. Notwithstanding California Elections Code Sections 10229 and 8601, if by five (5:00) p.m., on the eighty-eighth (88th) day prior to the day fixed for a regular or special election (or the eighty-third (83rd) day if an incumbent fails to file), (i) no one or only one (1) candidate has been nominated for any office which is elected on a City-wide basis, or (ii) no one or only one (1) candidate has been nominated to be elected from a councilmanic district, a write-in candidate shall be permitted to obtain and submit nomination papers for such office on the first business day after the regular close of filing for nomination papers.

B. If no candidate files nomination papers for a write-in candidacy by five (5:00) p.m., of the eighty-first (81st) day before such election, the City Clerk shall submit a certificate of these facts to the City Council. At its next regular meeting, the City Council shall do one (1) of the following:

1. Appoint to the office the person who has been nominated; or

2. Appoint to the office any eligible elector if no one has been nominated.

C. Notwithstanding any provision of the California Elections Code to the contrary, if the City Council makes an appointment pursuant to this Section, the City Clerk shall not accept for filing any statement of write-in candidacy that is submitted after the appointment is made.

D. If, by the seventy-fifth (75th) day prior to such election, the City Council has not appointed any person to the office pursuant to this Section, the election for that office will be held. (ORD-23-0049 § 2(Exh. A), 2023)

DIVISION III. REFERENDA AND INITIATIVE

Subdivision I. Referenda and Initiative Generally

1.15.210 Contents of petitions.

In addition to the requirements set forth in the California Elections Code, any petition for a measure shall contain in twenty-four (24) point type, prior to that portion of the petition for voters' signatures, printed names and residence addresses, the following language:

A. If the petition is circulated by a paid circulator the phrase "PAID CIRCULATOR" shall appear in 24-point type above the following language which shall appear in 12-point type:

NOTICE TO THE PUBLIC
THIS PETITION IS BEING CIRCULATED BY A PERSON WHO IS BEING PAID TO COLLECT SIGNATURES.

B. If the petition is being circulated by a volunteer the phrase "VOLUNTEER CIRCULATOR" shall appear in 24-point type above the following language which shall appear in 12-point type:

NOTICE TO THE PUBLIC
THIS PETITION IS BEING CIRCULATED BY A VOLUNTEER.

C. "Paid circulator", for the purpose of circulating a petition, means a person who is compensated in any manner for collecting petition signatures to qualify a measure.

D. "Volunteer", for the purpose of circulating a petition, means a person who is not a paid circulator. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.220 General procedures.

The Council prescribes the same procedure for the submission by it to the voters of any proposed ordinance, order or resolution, pursuant to the City Charter, as is prescribed in Section 8 of Article XI of the State Constitution with reference to the submission of proposed amendments to a City Charter submitted by a Council on its own motion. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.230 Filing fee.

Any person submitting a request for ballot title and summary with the City shall pay a filing fee set by resolution of the City Council. (ORD-23-0049 § 2(Exh. A), 2023)

Subdivision II. Campaign Disclosure Statements—Measure Committees

1.15.310 Purpose.

The purpose of this Subdivision is to regulate contributions provided to committees for the support or defeat or initiatives or referenda. This Subdivision is not intended to apply to committees of officeholders or candidates running for elective office of the City. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.320 Definitions.

The words set forth in this Section shall have the following meaning when used in this Subdivision:

A. "Committee" means any person or combination of persons that directly or indirectly receives contributions which total more than two hundred fifty dollars ($250.00) in a calendar year or makes expenditures exceeding more than two hundred fifty dollars ($250.00) in a calendar year for the purpose of influencing or attempting to influence the action of voters for or against the passage or defeat of any measure. "Committee"

shall not include committees controlled directly or indirectly by an officeholder or a candidate running for elective office of the City.

B. "Expenditure" means a payment, pledge or promise of payment of money or anything of value or other obligation, whether or not legally enforceable, for goods, materials, services or facilities in aid of or in opposition to the qualification for the ballot or adoption of one (1) or more measures. The term "expenditure" includes any transfer, payment, gift, loan, advance, deposit, pledge, contract, agreement or promise of money or anything of value or other obligation, whether or not legally enforceable, made directly or indirectly by one committee to another committee. "Expenditure" also includes the forgiving of a loan or the repayment of a loan by a third party.

C. "Period covered" by a statement or report required to be filed by this Subdivision means, unless a different period is specified, the period beginning with the day after the closing date of the most recent statement or report in question. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.330 Statement of organization.

A. Every committee shall file with the City Clerk a statement of organization on a form established by the City Clerk within three (3) days after it is formed as a committee.

B. The date which a committee formed, and not the date on which the committee filed its statement of organization, shall determine the committee's obligation to file the campaign statements required by this Subdivision. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.340 Campaign statements—Filing requirements.

Subsequent to the filing of the statement of organization, each committee shall file campaign statements on the following dates:

A. On January 31 (for the period October 1 to December 31), April 30 (for the period January 1 to March 31), July 31 (for the period April 1 to June 30) and October 31 (for the period July 1 to September 30) each year.

B. Within ninety (90) days of the election:

1. Ninety (90) days prior to the election (for the period from the last reporting period set forth in Subsection A. of this Section to ninety-seven (97) days prior to the election);

2. Seventy-five (75) days prior to the election (for the period from ninety-six (96) to eighty-two (82) days prior to the election);

3. Sixty (60) days prior to the election (for the period from eighty-one (81) to sixty-five (65) days prior to the election);

4. Forty-five (45) days prior to the election (for the period from sixty-four (64) to fifty-two (52) days prior to the election);

5. Thirty (30) days prior to the election (for the period fifty-one (51) to thirty-seven (37) days prior to the election);

6. Fifteen (15) days prior to the election (for the period thirty-six (36) to twenty-two (22) days prior to the election);

7. Five (5) days prior to the election (for the period twenty-one (21) to twelve (12) days prior to the election);

8. Seven (7) days after the election (for the period eleven (11) days prior to the election through the election date); and

9. Whenever any committee is required by this Subdivision to file a campaign statement with the City Clerk department, the committee shall file at the same time a copy of the statement in electronic format as prescribed by the City Clerk.

C. In the event that any campaign statement that a committee is required to file by this Section falls within seven (7) calendar days of any campaign statement that a committee is required to file by Government Code Section 84200 et seq., the City Clerk shall have the authority to move the City deadline in order to consolidate it with the State deadline and to adjust the periods covered by the City statement accordingly. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.350 Campaign statement—Contents.

Each campaign statement filed pursuant to this Subdivision shall contain the information set forth in California Government Code Section

84211, and shall be filed under penalty of perjury with the City Clerk on a Form 460 ("Recipient Committee Campaign Statement"), published by the California Fair Political Practices Commission. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.360 Report of contributions in excess of one thousand dollars.

Each committee shall report any contribution of one thousand dollars ($1,000.00) or more to the City Clerk within twenty-four (24) hours of receipt. Such reports shall contain the full name, street address, occupation and the name of employer, if any, or principal place of business if self-employed, of the contributor. Such reports may be by any written means of communication, and do not require an original signature. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.370 Violations and Penalties.

A. Each committee who files any report or campaign statement required by this Subdivision after the deadlines imposed by this Subdivision, shall be liable for the penalties enumerated in California Government Code Section 91013.

B. Any person violating any of the provisions of this Subdivision shall be subject to the penalties imposed pursuant to Long Beach Municipal Code Sections 2.01.1110 and 2.01.1120. (ORD-23-0049 § 2(Exh. A), 2023)

DIVISION IV. VOTER'S PAMPHLET

1.15.410 Procedure established.

Whenever the people by an initiative petition or the City Council, on its own motion, proposes any measure for approval or disapproval of the voters at an election, the procedure set forth in this Division shall be employed to inform the voters concerning the same. The procedure set forth in this Division shall also apply to measures placing an ordinance on the ballot as a result of a referendum petition. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.415 Appointment of representatives.

The Mayor, with the approval of the City Council, may designate a person, or association of persons, to write arguments either for or against or both for and against the adoption of any measure placed on the ballot. In making such designation the Mayor shall designate one (1) of the following:

A. The Mayor;

B. An officeholder;

C. An appointive officer of the City;

D. An association of citizens; or

E. An individual voter.

Provided, however, in no event shall more than one (1) argument for and one (1) argument against any measure be submitted to the voters. Whenever arguments are to be presented on one (1) side of a measure, all reasonable effort shall be made to obtain an argument in support of the opposite side to the end that whenever an argument for one (1) side is to be presented, arguments for both sides shall be presented. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.420 Setting time limits.

Arguments for or against any measure shall not exceed three hundred (300) words each, and shall be submitted to the City Clerk on or before the date set by the City Clerk to permit the preparation of rebuttal arguments as provided in this Division. All dates relating to the submission of arguments or rebuttal arguments shall be set by the City Clerk to ensure timely printing of the arguments and rebuttal arguments for the sample ballots required by law. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.425 Rebuttal.

A. If any person submits an argument against a City measure, and an argument has been filed in favor of the City measure, the Clerk shall immediately send copies of that argument to the persons filing the argument in favor of the City measure. The persons filing the argument in favor of the City measure may prepare and submit a rebuttal argument not exceeding two hundred fifty (250) words.

B. The Clerk shall send copies of the argument in favor of the measure to the persons filing

the argument against the City measure, who may prepare and submit a rebuttal to the argument in favor of the City measure not exceeding two hundred fifty (250) words. The rebuttal arguments shall be filed with the Clerk not more than ten (10) days after the final date for filing direct arguments.

C. Copies of rebuttal arguments shall not be released by the City Clerk to proponents or opponents of measures or to the public before the deadline for filing such arguments.

D. Rebuttal arguments shall be printed in the same manner as the direct arguments. Each rebuttal argument shall immediately follow the direct argument which it seeks to rebut. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.430 Identification of representatives.

All arguments and all rebuttal arguments shall include the printed name and the signature of the person or association preparing such arguments. In cases where arguments are prepared by an association, the name and signature of at least one (1) of the principal officers of such association shall be submitted with the argument. The name or names of the person or persons signing the arguments shall be shown on the copies of the arguments submitted to the voters, as provided in this Division. No more than five (5) signatures shall appear with any argument printed in the ballot pamphlet. In case any argument is signed by more than five (5) persons, the signatures of the first five (5) shall be printed. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.440 Printing and mailing.

When an argument for or an argument against the adoption of any measure or any rebuttal argument has been prepared as provided in this Division and submitted within the required time, it shall be printed and submitted to each voter and may be mailed together with the sample ballot for the election concerned. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.445 Organization of material.

When a pamphlet is prepared containing proposed Charter amendments or other measures, the proposed Charter amendments, measures and such argument or arguments and rebuttal arguments may be combined therein in an appropriate manner, or may be printed separately. The fact that only an argument for or only an argument against a measure is so prepared and submitted shall not prevent the argument being so submitted to each voter. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.450 Arguments in ballot order.

Argument for and argument against the adoption of any measure or any rebuttal argument shall appear in the same order as on the ballot, and each argument shall refer to the respective number or letter and the title or heading on the ballot. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.455 Impartial analysis.

Whenever any City measure qualifies for a place on the ballot, the City Attorney shall prepare an impartial analysis of the measure showing the effect of the measure on the existing law and the operation of the measure. If the measure affects the organization of salaries of the office of the City Attorney, the City Council may direct the City Clerk to prepare the impartial analysis. The analysis shall be printed preceding the arguments for and against the measure. The analysis shall not exceed five hundred (500) words in length. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.460 Charter amendments.

Whenever any Charter amendment qualifies for a place on the ballot, the City Council may direct the City Clerk to have the amendment printed in the pamphlet containing the impartial analysis, arguments and the rebuttal argument so as to indicate the material being deleted and the new material being added thereto. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.465 Effect of failure to comply.

A. The failure to appoint persons to draft the arguments or the failure of the arguments or rebuttal arguments to be prepared or submitted to the voters as contemplated by this Division, shall

not affect the validity of any election held pursuant to law applicable to the City in the holding of elections.

B. No election, proceeding, or measure, otherwise valid, shall be deemed invalid for any failure to conform to the time limits specified in this Division, provided the voters of this City, voting thereon, have voted in favor of the measure. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.470 Time limits on challenges to ballot materials—General elections.

Notwithstanding any provision of the California Elections Code, for primary and special elections the City Clerk shall make a copy of the material referred to in California Elections Code Sections 9223, 9280, 9281, 9282 and 9285 available for public inspection in the City Clerk's office for a period of eight (8) business days immediately following the filing deadline for submission of those materials. Any person may obtain a copy of the materials from the City Clerk during normal business hours for use outside of the City Clerk's office. The City Clerk may charge a fee to any person obtaining a copy of the material. The fee may not exceed the actual cost incurred by the City Clerk in providing the copy. During the eight (8) business day public examination period provided by this Section, any voter of the jurisdiction in which the election is being held, or the elections official, may seek a writ of mandate or an injunction requiring any or all of the materials to be amended or deleted. The writ of mandate or injunction request shall be filed no later than the end of the public examination period. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.480 Time limits on challenges to ballot materials— Primary and special elections.

A. For primary and special elections the City Clerk shall make a copy of the material referred to in Section 13307 available for public inspection in the City Clerk's office for a period of ten (10) calendar days immediately following the filing deadline for submission of those materials. Any person may obtain a copy of the materials from the City Clerk during normal business hours for use outside of the City Clerk's office. The City Clerk may charge a fee to any person obtaining a copy of the material. The fee may not exceed the actual cost incurred by the City Clerk in providing the copy.

B. During the ten (10) calendar day public examination period provided by this Section, any voter of the jurisdiction in which the election is being held, or the elections official, may seek a writ of mandate or an injunction requiring any or all of the materials to be amended or deleted. The writ of mandate or injunction request shall be filed no later than the end of the public examination period. (ORD-23-0049 § 2(Exh. A), 2023)

DIVISION V. CANDIDATES

1.15.510 Nominating petitions.

A. A nominating petition for a candidate in a district election for City Council member must be signed by a registered voter and resident of the geographical area making up the district from which the member is elected. No voter shall sign the nominating petition of any candidate for whom they cannot vote. A nominating petition for a candidate for a City-wide office may be signed by a registered voter and resident of the City.

B. A filing fee as determined by the City Council by resolution shall be paid to the City Clerk upon the filing of a nomination petition for any elective office of the City. In addition to said filing fee, a candidate shall submit a petition containing the signatures of twenty (20) registered voters who reside in the district in which the candidate is seeking nomination. In lieu of payment of said filing fee, a candidate may submit a statement under penalty of perjury that the candidate is indigent by virtue of having no available funds and is unable to raise funds sufficient to pay the required filing fee. Such candidate shall, in any event, submit the petition containing twenty (20) signatures of registered voters in the district in which the candidate is seeking nomination. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.520 Candidate statement.

A. In any candidate's statement filed in any election in the City, the designation of present principal profession, vocation, or occupation of a candidate shall be governed by the provisions of the California Elections Code including any regulations promulgated thereunder, as it reads now or as it may be amended. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.530 Mass mailings.

A. Except as otherwise provided in this Section, no mass mailing and no radio program or podcast, television program, video, social media video or livestream, or similar form of media shall be prepared, produced, printed, sent, broadcast, transmitted, delivered or distributed at public expense by, on behalf of, or at the behest of any officeholder after any such officeholder has filed the nomination documents as defined in Section 1.15.510.A of this Division or Section 333 of the California Elections Code, whichever is applicable, for any local, State or federal office.

B. Notwithstanding the provisions of Section 1.15.530.A, any officeholder may appear on a radio program or podcast, television program, video, social media video or livestream, or similar form of media prepared, produced, sent, broadcast, transmitted, delivered or distributed at public expense after said officeholder has filed nomination documents for local, State, or federal office only if:

1. The appearance is at a noticed public meeting, such as, a City Council meeting or a meeting of any of its subcommittees; or

2. The appearance is at an event open to the public for which the City is providing its facilities, staff, or other financial support; the event is not held by, on behalf of, or at the behest of one or more officeholders who have filed nomination documents for elected office, or their office(s); and half or more of the officeholders speaking at and/or participating in the event have not filed nomination documents elected office; or

3. The communication is necessary to protect the health, safety, and/or welfare of the public due to a state of emergency.

C. Except where otherwise prohibited by this Section, mass mailings exempt pursuant to Section 1.15.010 (E)(1) through (4) of this Chapter may be sent under the following conditions:

1. The mailing contains only a single mention of the officeholder and the mailing does not contain the officeholder's photo or signature; and

2. The mailing only includes information which is pertinent to the purpose of the public meeting or event, such as, the date, time and place, description of the subject matter, identification of speakers or participants, an explanation of any problems or issues, directions to the location of the meeting, and a telephone number to call for additional information; and

3. If the mailing is a notice or announcement, the officeholder's name may be included in the letterhead, and on the return address portion of the envelope or post card, as well as a single mention of the officeholder's name in the body of the notice or announcement. Where multiple officeholders are names in the letterhead, the names of all officeholders must appear in the same size, font type, color, and location.

4. For purposes of this Subsection, "mention" includes, but is not limited to, the officeholder's name, office, social media handle, pronouns referencing the officeholder such as "I", "we", or "us", or any other icon or image intended to represent the officeholder. "Mention" does not include an e-mail address or website that contains the officeholder's name or office.

D. Mailings exempt pursuant to Section 1.15.010 (E)(1) through (4) of this Chapter shall not be prepared, produced, printed, sent, broadcast, transmitted, delivered or distributed within sixty (60) days preceding an election by, on behalf of, or at the behest of a candidate for any local, State or federal office whose name will appear on the ballot at that election.

E. Any violation of this Section shall be deemed to constitute an infraction as provided in Section 17 of the California Penal Code, and penalties for such infraction shall be as set forth in Subsection 19.8 of the Penal Code. (ORD-23-0049 § 2(Exh. A), 2023)

DIVISION VI. ELECTRONIC CAMPAIGN DISCLOSURE STATEMENTS

1.15.610 Electronic filing of campaign disclosure statements.

Pursuant to California Government Code Section 84615, the City of Long Beach hereby finds that the online or electronic filing system will facilitate the efficient and secure filing of required campaign reports, and that such system will operate securely and effectively and will not unduly burden filers.

A. Whenever any officeholder, candidate or committee is required to file California Form 460 under the Political Reform Act and Regulations with the City Clerk, the information reported shall include information per election to date.

B. Whenever any officeholder, candidate or committee is required to file a campaign statement under the Political Reform Act or the Regulations with the City Clerk, the officeholder, candidate, or committee shall file the statement in an electronic format prescribed by the City Clerk. The City Clerk will have the discretion to accept other formats. The provisions of this Section shall apply only to persons or combinations of persons who qualify as a committee under Section 82013 of the Political Reform Act.

C. Any statement, report, or other document filed electronically or online pursuant to this Section need not be filed in paper format. The electronic copy will be treated as original.

D. The date of filing for a statement, report, or other document that is filed online or electronically shall be the day that it is received by the local filing officer. (ORD-23-0049 § 2(Exh. A), 2023)

1.15.620 Penalties.

Any committee or person who files an electronic copy of a semiannual, pre-election, supplemental pre-election or amendment(s) to a campaign statement required by this Division after the deadline imposed by the California Political Reform Act (California Government Code Section 81000 et seq.) for filing the written copy of such statement shall be liable in an amount determined by the City Council by resolution per day after the deadline, until the electronic copy is filed. (ORD-23-0049 § 2(Exh. A), 2023)

CHAPTER 1.16 DATUM PLANE

1.16.010 Adopted.

The Sea Level Datum of 1929, as established by the Coast and Geodetic Survey of the United States Department of Commerce, is adopted as the official datum plane for the City. (Prior code § 1600)

CHAPTER 1.20 POLITICAL DISTRICTS*

1.20.010 Districts established.

The nine (9) political subdivisions or districts of the City, as adopted by the Long Beach Independent Redistricting Commission, are respectively designated and established as follows:

A. District No. 1 shall comprise all of that portion of the City of Long Beach included in the 2020 Census Track and Block numbers:

Tracts (First 11 Digits) and Blocks (Last 4 Digits)

5763012024	5760012007	5759014011	5758022033
5763012016	5760013011	5762002018	5758032020
5762001018	5759014012	5762002017	5758032006
9800331043	5762001027	5762002016	5758032005
5762005017	5762001023	5762002015	5764032000
5760012016	5759021017	5762003011	5762001003
9800331080	5759011009	5762005027	5754021005
9800331046	5758022010	5762005026	5763012017
5763012022	5764032003	5762005032	5760013002
5763021014	5764012004	5759022014	5760013000
5759021002	5763013000	5759012013	5762001019
5754012005	5758022005	5759012012	5764032001
5759022008	5763021001	5759012011	5764032002
5754011006	5763011014	5762002019	5764022001
5754011028	5758032003	5759012007	5764012000
5763011003	5763022006	5759013006	5764012001
5758031004	5763013014	9800331041	5764012002
5758022011	5758032010	5754011002	5763021002
5758032012	5758022017	5760013027	5763022000
5763013024	5758011010	5760013018	5763022001

***Charter reference**—Charter provisions regarding political districts, see the City Charter.

5759012018	5763021004	5760013017	5763013001
5759022012	5763013007	5760013024	5759014006
5759012009	5763012004	5760013010	9800331037
5754022000	5763013012	5760012029	5759014010
5754022009	5764032004	5760013020	5760012030
5754011023	5758022024	5762004012	9800331032
5758021007	5763021022	5762001016	9800331051
5758031006	5762001006	5762001015	5759014001
5758022034	5758011000	5762004007	5760013036
5763021003	5762005000	5762005012	5762001025
5758022000	5760013026	5759021009	5759023020
5763012007	5760013025	5759021010	5762001014
5758022014	5762001017	5759023008	5763013023
5763013005	5762005013	5759023010	5759014000
5754011005	5759021011	5759023011	5762001026
5754012004	5759011005	5759011003	5763011007
9800331048	5754013000	5759011004	5759014007
5762001031	5754011007	5759011006	5766011001
5760012017	9800331038	5760012034	5760013032
5760012019	5762001011	5758021003	5760012015
5754021006	5759021005	5758011003	5759012002
5754021008	5762004008	5758011006	5760012014
5760012011	5759023014	9800331000	5760012005
5762002008	9800331039	5760012032	5759013008
5762003004	5766021005	9800331049	5762005002
5754022012	5762001010	5760013006	5760013022
5754011021	5762004004	5760013001	5760013019
5758021001	5759021008	5760013004	5763011011
5758021005	5759023005	5760013009	5763013002
5763011005	5762005030	5760012002	5763013003
5758021012	5759021026	5760012006	5763013004
5758022012	5759021027	5760012028	5763011015
5765011001	5760011000	5760012027	5763012005
5754021000	5759023017	5754013003	5758032000
5754013002	5760012018	5754012003	5758032001
5758022032	5762002004	5754012002	5758022001
5764022002	5759013003	5760012009	5758022002
5763022002	5762003006	5760012012	5758022003
5763011013	5762002007	5754011004	5758022004
5758022006	5762002023	5754011003	5758012000
5763022007	5762004009	5754022010	5758012001

5758022013	5759014013	5754022011	5762005023
5763013006	5759011010	5754022013	5763021009
5763021007	5760013033	5754011027	5763021010
5763022009	5760011003	5754011030	5763021011
5764032005	5760013038	5754011031	5763022008
5758022019	5760012008	5754022007	5763013010
5763013025	5759013000	5754022006	5763013011
5763013022	5754022004	5754022005	5763012009
5763013017	5754013006	5754011024	5763012006
5758032018	5763012008	5754011025	5764012007
5762005003	5760012021	5754011034	5758032008
5762004002	5762005024	5758022008	5758032009
5762001005	5759021023	5758022007	5758032011
5760013008	5759022007	5758021006	5758022015
5760012001	5759022004	5760011009	5758022016
5759021018	5759012001	9800331055	5758022018
5759022001	5759012006	5762005010	5758012002
5762005025	5759012005	5759014009	5760011004
5762003013	5759012004	5759014002	5762005009
5760012022	5758022009	5759014004	5759023009
5762002021	5754011020	5763011006	5764012003
5759012015	5764022005	5758031008	5763012023
5762003012	5759013004	5758031005	5766020003
5759022015	5759021024	5758021014	5762004015
5759012010	5759022006	5758021016	5762001024
5759012008	5759022005	5758021011	5760012033
5760013021	5759013005	5758011008	5759021014
5762005022	5762005001	5758011009	5760012026
5762004013	5762002014	5762001022	5762003000
5759023018	9800331047	5762001029	5759021019
5759011014	5760011006	5762001028	5759021003
5760012023	5760012025	5759021016	5758011005
5762002003	5762002011	5762004011	5758011004
5759021020	5762002012	5762004010	9800331053
5759022002	5762003009	5762005016	9800331045
5762002013	5762003005	5759021012	5762005028
5759022011	5762005021	5759023015	5762003010
5760012020	5762005020	5759023013	5759013009
5763011012	5759022009	5759011008	5754011010
5760012035	5759022010	5759014014	5759012003
5754011029	5759012014	5759011007	5759013001
5754022008	5762005018	5759023012	5762004014
5758011007	5762002009	5758031000	5762005015
5763011001	5762002005	5758031001	5759021015
5758011002	5762003008	5758031002	5759021013
5758032004	5762003007	5758031003	5759023016
5763021000	5762003003	5758021002	5759011011
5758032002	9800331042	5758022038	5759011012
5763021008	5762002022	5759022000	5759011013
5763022005	5762002024	5759022003	5759014015
5758012003	5762003015	5754013004	5759014016
5760011011	5762003014	5758031007	5762001030
5763013019	5762005029	5760012038	5762001021
5758032013	5762005031	5758022031	5760011008
5763013026	5759022016	5763021023	5758021008
5763013021	5763012013	5763021021	5754011016
5758022026	5758032017	5763022016	5754011014
5762005004	5758032019	5763012014	5754011015
5762004000	5758022025	5758032021	5764022004
5754011012	5758022028	5758032023	5763022003
5754011011	5758022029	5758032022	5763021006
5754013005	5758022030	5763022017	5763021005
5754022003	5758012004	5763022015	5763022004
5762004006	5763021016	5758022037	5763013009
5760012004	5762005005	5763021018	5763013008
9800331036	5762005006	5763021017	5763012000
5760013003	5759021001	5763021019	5763012001
5760012003	5765011002	5763022012	5763012002
5754021004	5762001001	5763022014	5763013016
5760012000	5762001002	5763013018	5763013015
5754011008	5762001004	5763012020	5760011010
5758021004	5759023001	5763012019	5764012005
5758011001	5759023002	5763012018	5764012006
5763022010	5759023003	5759021004	5763021015
5758021010	5759011000	9800331056	5763021013
5764022003	5759014003	5763013020	5763021012
5758022027	5759022013	5758032014	5763013013
5754011026	5759012016	5763021020	5763022011
5754011032	5759012017	5764022007	5764032007
5754011022	5754021001	5763012012	5764032006
5763011000	5754021002	5758012005	5763012011
5758021000	5754021003	5760011001	5763012010
5763011004	5754013001	5760011002	5758032015
5758021015	5754012000	5760011005	5758022023
5764022006	5754012001	9800331079	5758022020
5754022001	5754011000	5760013035	9800331006
5762001008	5754011001	9800331035	5758022022
5763011002	5754022002	5760013014	5758022021
5754011033	5754011017	5760013013	9800331012
5758021013	5754011019	5760013029	9800331007
5763012003	5754011018	5760013028	5760012036
5758021009	5754011009	5760012024	9800331081
5763012015	5760013012	5760012037	9800331052
5763022013	5760013016	5760013031	9800331044
5763012021	5760013015	5760013030	9800331050
5758032016	5760013023	5760013007	5762001009
5762005008	5762001013	5762004001	5762001007
5759011002	5762001012	9800111000	5765011003
5759014008	5762004005	5762002006	9800331040
5759023000	5762004003	5754011013	5760011007
5759021000	5762005014	5754021011	5760012031
5762001000	5762005011	5754021010	5760012013
5760013034	5762005007	5754021009	5759013002
5760013037	5759021007	5754021007	5762002002
5759012000	5759021006	5763011010	5762002001
5759014005	5759023007	5763011009	5762003001
5759023019	5759023006	5763011008	5762003002
5762002000	5759023004	5758031009	5762005033

5762002010 5759011001 5758031010 5762005019
5759021025 5762001020 5758032007 5759021021
5760012010 5759013007 5758022036 5759021022
5760013005 5762002020 5758022035

The foregoing list of Tracts and Census Blocks constitute the FIRST COUNCIL DISTRICT, which is a downtown district that includes the Downtown, East Village, Magnolia District, Washington School, West Village, Willmore neighborhoods, and the majority of population in the Saint Mary's neighborhood. This district is inclusive of the eastern side of the Port of Long Beach (Port) including travel/entertainment destinations connected to the Downtown area. The Craftsman Village neighborhood and half of AOC7 are contained in this district along with the Museum of Latin American Art from the North Alamitos Beach neighborhood and the Pacific Island Ethnic Art Museum on the other side of Alamitos Blvd.

B. District No. 2 shall comprise all of that portion of the City of Long Beach included in the 2020 Census Track and Block numbers:

Tracts (First 11 Digits) and Blocks (Last 4 Digits)

5751021009 5769031007 5751021010 5766012007
5768011005 5769042002 5751032004 5767003013
5767001006 5769012000 5751032010 5766023007
5751021000 5771004006 5751022002 5766012006
5751032005 5765012009 5751022003 5766013008
5769031005 5769041009 5751022004 5766013007
5769012001 5765021002 5768012006 5768021004
5768022006 5768013002 5765032007 5765021004
5765022000 5767003008 5768012008 5751031000
5769032000 5766024000 5766012000 5751031001
5772003011 5766023002 5765032003 5751012002
5769041003 5771003011 5765032004 5734025011
5768013008 5767003004 5765012008 5751012000
5769012006 5766013004 5768012004 5751012001
5765021000 5765011009 5768012003 5751033002
5765032005 5771005006 5765022002 5751012004
5766013000 5765031004 5767003006 5751033003
5751012007 5765012001 5766024003 5751012005
5751012010 5772003006 5767003007 5751031002
5767003000 5772003005 5766023001 5751012003
5766024004 5765012005 5766012005 5751012011
5768022004 5769012009 5766024002 5751031006
5768013005 5751031005 5768013010 5751031004
5772003012 5765012006 5766012003 5769032004
5772003001 5768013007 5768022012 5769031006
5765023002 5772003010 5765032008 5769032005
5768022005 5766021004 5765023000 5769032003
5765032002 5766013006 5751022005 5769042001
5768012005 5765011010 5751022007 5769012003
5765011006 5766021000 5765023005 5769041000
5767001010 5772004005 5768012007 5769041001
5767001007 5767002005 5766012001 5769041004
5767001011 5772004012 5768022011 5767001001
5767002001 5767001013 5768022010 5765011008
5772004011 5768021006 5765023004 5766011000
5766021002 5772003013 5751012009 5769042000
5768022000 5765012003 5751012006 5771004005
5769031004 5765012004 5751012008 5768022008
5769041002 5772004007 5771003012 5768022007
5765023001 5767002000 5769031000 5765021005
5768021003 5767001008 5769031001 5767003003
9903000001 5767001009 5769031003 5767001003
5765022003 5767003017 5769032001 5768013003
5767001005 5767002004 5769013000 5765031001
5766013003 5765032001 5768021008 5765031003
5768013001 5766012002 5768013004 5768021001
5768013000 5765032000 5765031005 5769012010
5765011004 5767001014 5769013006 5769012011
5765031002 5767001012 5765031000 5766023005
5765032006 5767002006 5767001000 5766022002
5769013001 5772003007 5766023003 5769012004
5769031002 5768013006 5766023000 5768011002
5751022001 5765021003 5766012004 5765012007
5751022006 5751032009 5771005007 5765011012
5751031003 5751032003 5768021010 5768021011
5751032001 5767002008 5768021007 5768021012
5769031008 5767001016 5768021005 5765031008
5751022000 5772003003 5765031007 5765011007
5767003005 5767001015 5765031006 5765011011
5766023006 5772003004 5769013003 5767002002
5766023004 5767002007 5751032002 5767002011
5766022000 5768022001 5751021001 5767002010
5766022001 5768022002 5769042006 9800331077
5768011006 5768022003 5769042005 9800331054
5765011005 5768012002 5769042004 5766021008
5766022003 5765012000 5769041008 5766021007
5767003016 5765012002 5769041007 5766021006
5767002003 5765022001 5769041006 5772002024
5767003011 5771004003 5769012007 5767002012
5766021003 5771004004 5769042007 5769012008
5772004010 5768012000 5772003002 5772004004
5768013009 5767001017 5768011004 5772004006
5766024001 5766013001 5769041005 5768021000
5768012001 5771005004 5769042003 5766020001
5766013002 5771005005 5767003002 5766020002
5765023003 5768021002 5767003001 5767003010
5767002009 5765021001 5769012005 5766021001
5768022009 5768011000 5769012002 5767003015
5766013005 5768011001 5766024005 5767003014
5768021009 5768011003 5767001004 5767003012

5767001002 5765011000 5767003009

The foregoing list of Tracts and Census Blocks constitute the SECOND COUNCIL DISTRICT, which is a coastal district that includes the Alamitos Beach, North Alamitos Beach (except for the portion with the Museum of Latin American Art), Carrol Park, Bluff Heights, and Bluff Park neighborhoods. To the north, this district includes the neighborhoods of Rose Park and Zaferia. The coastal portion of this district includes a significant LGBTQ+ community of interest, including the LGBTQ Center and annual Pride parade on Ocean Blvd from Alamitos Ave to Lindero Ave in the Bluff Park neighborhood.

C. District No. 3 shall comprise all of that portion of the City of Long Beach included in the 2020 Census Track and Block numbers:

Tracts (First 11 Digits) and Blocks (Last 4 Digits)

5776022009 5770002003 5750022002 5776022004
5771003004 5770003000 5750022006 5776051012
5776052024 5770003001 5750022007 5776051009
5776052025 5774004011 5751032006 5776051008
5750021007 5773002004 5750023013 5776051007
5750022017 5770004001 5750023003 5776051006
5776041017 5770005014 5770002006 5776062023
5772002020 5776062008 5770002009 5776062009
5775011015 5770002001 5770002002 5771005011
5750022008 5750023004 5750022014 5776062006
5772001006 5770004007 5750023005 5771001012
5771002007 5775012042 5776041006 5771001005
5776061004 5775012012 5773005002 5771005008
5776062013 5775013016 5773001000 5770001008
5773002001 5775012017 5775011002 5770001004
5776053006 5776041014 5773003000 5770001003
5772002007 5771003001 5773003006 5775041024
5750023014 5771003007 5773005003 5776052001
5770005004 5776022030 5773002007 5776051016
5770003008 5750021005 5773003001 5776051015
5770005006 5775012004 5774004006 5750022000
5773002005 5775011026 5776022000 5750021012
5751032000 5773005008 5771002011 5770004003
5750023006 5775011016 5771002010 5776053010
5750021008 5775012018 5776022010 5771001011
5774004009 5775013026 5773006004 5775012015
5774002015 5775013023 5775011013 5770005011
5775012040 5775012006 5775013001 5770004006
5772002004 5771003009 5775013010 5770003003
5775012041 5776062011 5775013015 5750022003
5774002003 5775012007 5773005009 5776022014
9800071011 5775012005 5773001006 5776041000
9800071009 5773006000 5775013014 5772004003
5776052012 5775013000 5775013002 5771001004
5776052010 5776022011 5776051013 5776021008
5776052028 5774003003 5776021006 5775013022
5776061017 5772001007 5776021005 5770005009
5776061001 5776022018 5776021007 5776051004
5776062026 5775012036 5776062027 5776041018
5776052022 5773002000 5771002008 5775042007
5776022008 5773002003 5771004010 5775041016
5750022004 5776053012 5776062025 5775042002
5776041016 5772002003 5773004001 5775042001
5772002013 5772002009 5773003004 5775041008
5773004003 5771005003 5774004005 5775041009
5774004007 9800071008 5772002014 5776022022
5772003009 5775012011 5773004002 5776052018
5772002000 5776022020 5773003005 5776022027
5774004002 5776022023 5774004010 9800071012
5770003007 5776022019 5772002015 5776061020
5770003009 5775041022 5776022024 5776053005
5770004004 5771001015 5776022021 5775042012
5771002004 5776021012 5774004004 5776022032
5776062000 5774001007 5772002012 5776022016
5775012031 5776021011 5772002016 5776052007
5774001010 5776052029 5750022009 5773004012
5772002008 5776062017 5750022010 5773005001
5774002014 5771004000 5770001006 9800071000
5774002011 5776022006 5750023007 5775041028
5772001010 5774003002 5770005000 5775011012
5776053008 5774002017 5770005001 5776052026
5774002001 5774002000 5776061002 5776053011
5776021009 5776062015 5776052002 5775011001
5776041013 5776051011 5776052003 5776052015
5776022025 5771001006 5776061006 5776022013
5776052014 5775042004 5773001004 5776062022
5775041006 5776022017 5776041001 5771004001
5774002005 5776022033 5773005006 5776062007
5775041002 9800071005 5775013004 5750021004
5774001002 5776022029 5773001005 5751033000
5772001000 5775042009 5775013006 5751033001
5772004001 5775041014 5773005005 5750021009
5776052011 5776062020 5773001003 5750021010
5775041005 5775011025 5776041010 5770005013
5775041019 5776052005 5773001001 5770002000
5776053019 5776052006 5775011011 5770002004
5772001013 5773002006 5775011003 5770005007
5776051018 5771001010 5773005011 5776052013
5776062014 5772002006 5773004010 5771001001
5771002000 5775041010 9800071007 5776053002
5776062003 5775042000 5775011005 5776022002
5775011024 5775042013 5773005000 5776062005
5774004012 5776041020 5773004011 5771001008
5773004009 5775041017 5775011007 5771001003
5750022011 5775042005 5776041008 5775041013
5776052016 5775041011 5773002009 5775042014

5776052009 5775042010 5773001002 5775012019
5776061015 9800071015 5775013028 5776052027
5776052017 5776052031 5775013011 5776041011
5770001011 5776052032 5775013012 9800071016
5770001001 5776061022 5773004004 5776052023
5770003006 5776061019 5772002011 5772002019
5770005003 9800071003 5773002002 5772001015
5770005008 5772001014 5772002010 5774002012
5775011000 5772004008 5773004005 5772001016
5770004002 5772004009 5776053013 5775041020
5771004011 5770004000 5776053022 5775041007
5776051000 5776022007 5774004008 5775041012
5776061007 5750023008 5774004003 5775042003
5775013003 5750023011 5773004006 5775042008
5750023001 5775041004 5773004007 9800071004
5750023009 5776053015 5774002019 5776041019
5750023010 9800071001 5774002018 5775012002
5770002008 5774004001 5772002001 5775013034
5750023002 5774002013 5772002005 5750022018
5775012008 5776053020 5772003008 5775012029
5774003004 5774002016 5776053014 5770003005
5750023012 5772001011 5774003006 5771002005
5771003008 5774002010 5776052021 5770005012
5772002002 5774002009 5776053021 5771002006
5773003007 5774004000 5776053001 5770003004
5776022015 5774002008 5776061018 5776041007
5776061000 5772001009 5776052000 5776041012
5776053000 5776053016 5775013018 5774001006
5770001000 5774003001 5775013017 5774002006
5776041015 5776053017 5775013020 5775013013
5751032008 5776052020 5775013008 5773006005
5770004005 5776053003 5775011014 5773005007
5750022013 5774003000 5775011018 5775012009
5750022001 5774002002 5775013027 5775012014
5750022012 5774002004 5775011031 5776062004
5770002005 5774002007 5773001007 5776041004
5750023000 5772001008 5775011019 9800071014
5773005010 5772003000 5775012028 9800071013
5751032007 5776062019 5775012027 5775012013
5770001007 5776022012 5775011030 9903000002
5770003002 5776051020 5775012026 5775042016
5776061003 5776051017 5775012025 5776022026
5773004008 5776051019 5775012038 5776051010
5775011008 5776051022 5775013019 5771005010
5751033004 5776062024 5775012024 5775042015
5775013005 5776062012 5775012039 5776052008
5773006006 5776062018 5775013024 5772001002
5775013029 5776062021 5775012016 5776053018
5773006002 5771002002 5775013021 5776021003
5775013009 5771002003 5775011029 5776021002
5771004009 5771004002 5775012023 5776021004
5776061005 5772001012 5775013032 5776053007
5776051001 5775012021 5775011020 5774001009
5776051005 5775013033 5776061013 5775041023
5771005001 5775013031 5776061012 9800071006
5775042011 5775013007 5771003005 5750021011
5775042006 5775011021 5776061011 9800071010
5771001013 5775012020 5771003000 5776022001
5774001008 5775013030 5771003002 5776022005
5776052019 5775011028 5771003006 5771001014
5775041015 5775012003 5771003010 5771005012
5776021010 5775011022 5750021006 5776062010
5776051021 5775011027 5776061016 5776021000
5771002001 5773006001 5776022031 5775041025
5773005004 5775012001 5776061014 5775041026
5776041005 5775012000 5776061010 5773001008
5776041002 5773006003 5776061009 5772002021
5772002017 5775011023 5776062001 5772002022
5776052004 5775041027 5770001005 5775041030
5773002008 5775041000 5770001009 5773001009
5775011004 5774003005 5770001010 5770003010
5775011006 5771004007 5770005002 5770005010
5776041021 5776061008 5770001002 5773003002
5776051014 5771002009 5775011010 5773003003
5775041001 5771004008 5776041009 5773004000
5775012035 5776022003 5772002023 5772002018
5775013025 5776021001 5775011009 5776052030
5776022028 5776051002 5771001007 5774001003
5775012022 5776051003 5775012032 5774001000
5771003003 5776062002 5775012030 5774001001
9800071002 5771001000 5776041003 5774001004
5775041003 5771001002 5775011017 5774001005
5776062016 5771005000 5775012037 5772001001
5775041018 5771005002 5775012034 5772001003
5775041021 5771005009 5775012010 5772001004
5771001009 5750021002 5775012033 5772001005
5750022016 5750021003 5770002007 5772004000
5750022015 5750022005 5770002010 5772004002
5770002011 5776053004 5770005005 5776052033
5776053009 5776061021

The foregoing list of Tracts and Census Blocks constitute the THIRD COUNCIL DISTRICT, which is a coastal district that takes in the ocean-front communities from the City's Bluff Park, along Belmont Shore to the Peninsula and ending at the San Gabriel River. This district includes Naples, a community around the Marina, Alamitos Heights, Belmont Shore, Belmont Heights, Recreation Park, Bryant, and a portion of the Traffic Circle along Pacific Coast Highway which in-

cludes Community Hospital. This district includes a portion of the beach and has multiple parks, golf courses, and aquatic recreation.

D. District No. 4 shall comprise all of that portion of the City of Long Beach included in the 2020 Census Track and Block numbers:

Tracts (First 11 Digits) and Blocks (Last 4 Digits)

5744004006 5748002010 5748003008 5552022001
9800061013 5745002015 5745003013 5748003007
5743004016 5745002011 5748003006 5745001004
5744006003 5745002008 5742013012 5743002007
5745001007 5749021007 5744004018 5740002001
5749011003 9800061012 5742022015 5740002003
5749014006 5748001015 5749021008 5749012002
5749013000 5745003005 5745004012 5749013001
5745004022 5742012000 5745004003 5552021012
5749023002 5744003001 5745004004 5745002021
5745003001 5743001010 5745004021 5745002022
9800181029 5744005007 5745004006 5745004016
5744001007 5742013014 5745001001 5745001002
5744005008 5744005000 5745001008 5743006000
5749013003 5742011010 5745001011 5743004014
5743002006 5748001006 5745001012 5739021017
5742022007 5745003006 9800061008 5552021004
5749022005 5743001002 5743001011 5552021013
5749013006 5744005001 9800181024 5745004002
5739021014 5744005002 5742012001 5750012020
5781001005 9800181019 5742012004 5743006004
5745002019 5743002000 5744001006 5745003010
5781001009 5743005003 5744001005 5748001002
5746021000 5749011004 5744001004 5748001004
5745003004 5749014004 5744003000 5781001003
5748003003 5750011015 5744003002 5748001003
5742011005 5750011003 5742022006 5748003004
5744005003 5743004017 5748002004 5743002004
5742011002 9800181035 5746021008 5748002006
5743005001 5745004008 5746021006 9800061006
5749014005 5739021013 5552022002 5750012019
5750012000 5746021005 9800061002 5750012012
5745002025 5746021003 5749013011 5750012003
5744006006 5749014009 5743006012 5750012004
5742011007 5749012001 5743006014 5750012016
5745004000 5749021005 5749022004 5750012011
5748001013 5744001009 5744004012 5750012015
5748001010 5744005009 5740001002 5748002002
5748001000 5743002008 5739021003 5745004005
5743003008 5745004015 5748003010 5744006004
5744006010 5552022004 5748003009 5745002020
5744004002 5739021009 5748002000 9800061000
5781001004 5746021009 5740001006 5552022011
5744004003 5743004004 5742013010 5552022014
5742011001 5743001006 5743003011 5749014008
5743001001 5742021006 5744002005 5745003003
5745002013 5743004012 5743004011 5739021016
5745002016 5743003004 5744004021 5552021002
5746021002 5745003000 5743004008 5552021011
5749023000 5743001000 5743004010 5552021001
5744004005 5742021007 5743004007 5739021021
5742022016 9800181037 5744004017 9800181036
5742022009 5742012009 5742013013 9800061001
5743006013 5749012011 5750011005 9800061003
5743004006 5749013005 5750011006 5750012006
5743003003 5745001013 5750011007 5750012007
5742013017 5745001014 5750011008 5750012018
5742013019 5744002001 5750011009 5749012003
5552022003 5742022001 5744002004 5739021004
5781001011 5745004032 5745001006 5740002002
5746021010 5742013003 5745001009 5742011012
9800181023 5742013004 5749011006 5743001008
5744002007 5750021000 5749011005 5743001009
5552021003 5742012002 5749022001 5742011003
5552021007 9800061004 5742021004 5743002005
5744005006 5750011018 5750011000 5743002003
5742021002 5749021006 5743004003 5745002024
5740002000 5739021011 5748001005 5745004018
5749012004 5552022006 5745003009 9800181021
5745004024 5740001000 5781001000 5739021023
5743002009 5740001001 9800181032 5743001003
5749021004 5740001003 5743005008 5744001003
5743005010 5748001001 5740002005 9800061009
5743006003 5744006008 5740002004 5744006000
5749011008 5743004018 5740002006 5744006001
5745003002 5739021001 5740005000 5744006002
5748001008 5739021002 5739021020 5744001000
9800181028 5749014010 5739021010 5744001001
5745004029 5749022003 5745004010 5743005000
5743006010 5745001003 5743004013 9800061011
5749013009 5749011009 5744004016 9800061010
5745001005 5744002003 9800181022 5781001010
5745004017 5749014012 5739021005 5781001008
5743006001 5744003008 5739021019 5781001007
5744004000 5744003005 5739021018 5746021007
5743004002 5742022000 5745003011 5748002003
5743004000 5743002015 5748001009 5745004007
5742022003 5743004001 5748002008 5552022009
5744003003 5743003000 5748002007 5749021010
5743005005 5742013002 5748001011 9800181033
5744006009 5742021000 9800181034 5750012008
5552021010 5742013001 9800181018 5750012002
5740001004 5742021001 5552021005 5750011012
5744002000 5744004001 5552021006 5750011013
5748001012 5742022012 5552021014 5750011014
5552022013 5781001001 5552022012 5750011001
5745003007 5749021002 5745002023 9800061016
5745002026 5552022007 5743004019 5739021000
5739021015 5552021008 5743004015 5745001010

5742011004 5552021000 5743003012 5749022002
5743002001 5740001009 5744002006 5743002011
5744001002 5748002001 5744004023 5745004027
5745001000 5739021006 5743003013 5743002013
5749011001 5739021007 5743003009 5743001004
5749014007 5742013000 5744004019 5746021001
5742011009 5743002014 9800061015 5749011002
5748002009 5744003007 5743003010 5742021003
5742012003 5744003006 5745002010 5742022002
5750012017 5749021011 5745002017 5749011010
5749012005 5745004031 5781001006 5745004030
5744002002 5743006011 5745002002 5742013009
5744004004 5745004023 5745002007 5743003006
5749012008 5750012009 5745002018 5744004022
5743003002 5743006009 5746021004 5743003007
5744003009 5744005005 5748002005 5749012013
5743006008 5743001005 5745004025 5743002002
9800181020 5744006005 5749021009 5748003001
5745002000 5744006011 5749014013 5744004015
5742013018 5744006007 5743005009 5743006002
5742021008 5743001007 5744001008 5743006005
5745003008 5742011011 5744003004 5749012006
5745002004 5742011008 5742012006 5749011007
5750012010 5742011006 5742022004 5749013002
5742022010 5745002012 5742022005 5749014011
5748001007 5750011017 5743002010 5745004028
5744005004 5552022008 5743001012 5745004026
5742012010 5552022010 5744005011 5744005010
5745001019 5745001015 5742012005 9800181030
5552021016 5745001016 5749023004 5742012007
5740004000 5744004014 9800061007 5743005006
5745004011 5744004008 5740005022 5743005002
5749012009 5742013007 5745002009 5743005004
5745004019 5743003005 5745002006 5743005007
5743006006 5742022014 9800181031 5749011000
5749013008 5742022013 5743002017 5749012000
5743003001 5742013011 5744004009 5749014003
5744004007 5742013015 5742012008 5749014000
5742013006 5552021009 5743002012 5749014001
5742013008 5552022000 5739021022 5749014002
5743004005 5552022005 5739021012 5749021000
5743006007 5739021008 5749012007 5749021001
5742022008 5740001007 5749012010 5749021003
5740001008 5781001012 5749012012 5750011011
5743004009 5744004013 5749013004 5750011010
5742013016 5744004011 5749013007 5742013020
5742021005 5742013005 5745002001 5749022000
5742022017 5745001018 5748003005 5744002009
5750011004 5749013010 5748003002 5744004024
5745002003 5749023001 5745002005 5750011002
5781001002 5750021001 5745003012 5744002008
5552021015 5748003000 9800061014 5750012013
5740001005 5749023003 5745001017 5748001014
5742011000 5745002014 5745004020 5742022011
9800181025 5745004001 5745004013 5750011016
5743002016 5745004009 5745004014 5750012001
5750012014 5744004010 5744004020 5750012005

The foregoing list of Tracts and Census Blocks constitute the FOURTH COUNCIL DISTRICT, which is an eastern district that stretches from Signal Hill to the San Gabriel River above PCH and the 22 Freeway. This district also includes a portion of the Long Beach Airport (Airport) property, the neighborhoods of Park Estates, Atherton South, La Marina Estates, College Park Estates, Bixby Hill, a portion of Traffic Circle, Los Altos North and South, and the Veterans Affairs Medical Center. To the east and north along the 605 Freeway, this district includes El Dorado Regional Park, Rancho Estates, and El Dorado Park Estates, and Imperial Estates. This district unifies California State University Long Beach and the neighborhoods, which include student housing and communities of interest most impacted by the campus. This district also consists of the historic Puvunga site, a sacred site of the Tongva nation, and the Airport Arrival community of interest identified through public input.

E. District No. 5 shall comprise all of that portion of the City of Long Beach included in the 2020 Census Track and Block numbers:

Tracts (First 11 Digits) and Blocks (Last 4 Digits)

5715044004 5738003003 5779003002 5718002004
5719002001 5738003006 5720011005 5718001035
5718001006 5736016006 5720014019 5718001000
9800181000 5738001008 5718002009 5715041007
5779003008 5737001003 5712011009 5718001018
5738002000 5737001004 5712013003 5718001036
5779003012 5737001007 5741003003 5718001001
5736012005 5736011010 5740004008 5718001016
5737003005 5736011003 5740003010 5741001008
5736018005 5718002005 5720013005 5741001000
5720012000 5718003003 5779002001 9800181043
5718001010 5718001009 5779003005 5712021009
5718003004 5718003011 5741005008 5741004011
5741005004 5715043004 5737004002 5779001005
5740004004 5779001000 5720014007 5741001009
5740004005 5720011022 5779004003 5741004008
5740003003 5720012010 5738003000 5740005019
5741003002 5720012011 5737002006 5720011004
5741005010 5720014012 5712014005 5719003021
5736011000 5738001014 5712014004 5720011016
5738004004 5718002011 5712013002 5741005002

5720013002	5719003012	5715044006	5737002001
5737001017	5719003014	5719003018	5737003001
5720011009	5719003022	5719004011	5718003010
5720013000	5719004014	5719001000	5737001011
5720013006	5719004012	5738003007	5719003023
5720013008	5718003006	5712021005	5741001002
5720013009	5718003007	5740003000	5741001003
5779002000	5718002008	5720012012	5737002009
5779002002	5719003024	5720014020	5737002003
5779002003	5736016009	5720012001	5719002009
5779003000	5736016003	5738002009	5741002009
5779003001	5738001004	5719004006	5736014005
5720011008	5737001006	5719003002	5741004003
5720011007	5719003015	5715041004	5741004006
5719001010	5718001015	5779001003	5712022004
5736016000	9800181008	5720013004	5720014003
5737002002	9800181010	5720013010	5720011012
5718001003	5740005012	5779002004	5718001012
5719001014	5741003015	5738004003	5715041010
5712012001	5741003011	5720011006	5736012008
5712013007	5712012005	5740004010	5715044005
5712012000	5736014003	5741002002	5719002000
5712011008	5736014001	5712022007	5738003005
5712011007	5736014002	5779003007	5736012007
5712011006	5736014006	5736018008	5719003005
5712012004	5719002006	5718002000	5719004002
5712012007	5715043000	5736018006	5712021004
5712013004	5715043001	5718001008	5712013005
5713001017	5736019007	5737003004	5720014005
5719001008	5715042000	5719001013	5736012009
5719002007	5737001002	5741002001	5720011013
5740005021	9800181039	5740003001	5720014000
5740005010	9800181038	5715041005	5718003002
9800181007	9800181041	5741003004	5715041008
5738002002	5740003009	5736011002	5718001004
5738002007	5741002006	5738004005	5712012002
5738002008	5741002010	5720013003	5712021003
5737003009	5741002011	5740004006	5779003010
5737001019	5740003005	5712013006	5738004010
5736012006	5740005001	5713001012	5718001013
5779002008	5740005002	5712023004	5713001014
5779002007	5741002008	5715041006	5738004006
5719003010	9800181014	5737004000	5738002006
5719003008	5741002005	5712011010	5736018007
5719003007	5712011000	5737003006	5740005016
5719003006	5741004014	5779002009	5741004002
5719001004	5712022002	5720011019	5712022006
5719001003	5736012010	5779004004	5736019000
5712022001	9800181001	5718002003	5719004004
5737003007	5738002001	5712011002	5712011005
5738004009	5720012007	5712013000	5719002005
5737001018	5737002008	5736013002	5712013001
5737001014	5737001008	5736016005	5736019002
5737001013	5715043009	5736011004	5736013004
5737003000	5718001002	5719002004	5738002003
5737003002	5736015002	9800181015	5741002007
5737003003	5736016004	5719003013	5741004015
5736018002	5715043003	5736016008	5779004002
5736018003	5736011006	5736011005	5720012009
5736012000	5719001001	5722012004	5738003002
5736018004	5736017003	5738001011	5712011012
5736012002	5719004017	5740003004	5712011004
5736012003	5738004002	5715044001	5712014006
5741005006	5740004001	5719002010	5738003009
5718003000	5712021000	5719001011	5736013005
5718001005	5737004001	5738001003	5737004003
5719001012	5741003013	5736018001	5738003004
5712012008	5741003014	5736018000	5718002010
5737001000	5740005009	5738001013	5719004013
5738004007	5712022009	5741004010	5718002012
5712012009	5737002000	5741004013	5736016010
5718001039	5720014017	5740005007	5738001006
5736013007	9800181017	5740005008	5779003003
5720011018	5720014015	5741003008	5741003012
5720011020	5779004008	5740003006	9800181011
5720011021	5779004005	5741004017	5720014016
5720014009	5738003010	5736013001	5738004001
5720012005	5737002011	5738004000	5715041000
5720014011	5738003008	5719001005	5719001009
5720014010	5736019005	5718001007	5712023001
5720014008	5718002007	5712022000	5722012002
5779004000	5718002006	5736012001	5737001010
5779004001	5715041003	5741004016	5736017001
5779004007	5715041001	5741001007	5712023005
5738003001	5736011007	5741001006	5740004009
5737002004	5779002005	9800181005	5741005001
5737002005	5720013001	5720014001	5720014014
5737002007	5740004007	5720014002	5712012003
9800061005	9800181006	5720014004	5712012006
5718003005	9800181013	5779003011	5741003005
5718001014	5736015001	5779003009	5718002013
5718003009	5719003019	5736012004	5736016002
5718001017	5719003020	5720011014	5719004009
5718002002	5741004009	5720011011	5719002002
5736015000	5741004007	5720012002	5715043005
5719004001	5741004018	5720012003	5720014013
5719003000	5741004012	5720012004	5719004016
5719003003	5740005014	5779002011	5719003011
5719004000	9800181040	5718002001	5719004015
5736019001	9800181004	5719001007	5718003008
5719003017	5737001005	5741005003	5736011008
5719004010	5736016001	9800181026	5736016007
5719004008	5712011011	5740004002	5719003016
5719004007	5736014004	5741005000	5715043002
5740005003	5713001013	5740004003	9800181016
5740005005	5713001021	5741001005	5720014018
5740005006	5736014000	5741002000	5736019006
5740003007	5736015003	5720012013	9800181042

5741002004 9800181027 5720014023 5740005011
5741003007 5719001006 5720014022 5740005018
5741003006 5712023002 5736011009 5741001010
5741004000 5712021001 5719002008 5741005011
5741004001 5712021007 5715043010 5737003008
5741004004 5712021006 5715043011 5779002006
5741004005 5712023000 5737001001 5719003009
5738002004 5720014024 5715041009 5719004005
5737002010 5722012001 5715044002 5719003001
5741005007 5722012006 5718001011 5720011015
5722012013 9800181003 5737001009 5720012008
5741002003 5740005015 5715041002 5720014006
5738001007 5741001001 5712021008 5779004006
5719002003 5741001004 5740003002 9800181002
5715043006 5740005013 5740005020 5718003001
5715043008 5713001011 5740005017 5720011010
5712014000 5738001001 5737001012 5719003004
5712011001 5738001002 5715044003 5719004003
5712011003 5738001012 5712022008 5720012006
5712014001 5737001015 5712021002 5779002010
5712014002 5737001016 5712022003 5779003006
5712014003 5736011001 5712022005 5719003025
5712014007 5738001010 5715042001 5719001002
5715043007 5736017004 5712023003 5713001002
5740003008 5736017000 5712023006 5722012000
5722012005 5736017002 5712023007 5738001005
5722012003 5736017006 5712023008 5736017005
9800181012 5736017007 5712023009 5737004012
9800181009 5736017008 5712023010 5741003000
5736019004 5736017009 5741003010 5741003001
5736019003 5738001009 5741005009 5720014021
5736013000 5719004018 5741005005 5740005004
5736013003 5738002005 5779003004 5741003009
5736013006 5715044000 5738004008 5720013007

The foregoing list of Tracts and Census Blocks constitute the FIFTH COUNCIL DISTRICT, which is a district that stretches across the northern part of the City. This district includes the neighborhoods Los Cerritos, California Heights, and a portion of Bixby Knolls split at San Antonio Drive in the western side of the City. This district crosses the Airport and continues to the neighborhoods of Lakewood Village, Old Lakewood City, South of Conant, Plaza, and Carson Park in the eastern side of the City. This district also includes the Airport Departure community of interest identified through public input.

F. District No. 6 shall comprise all of that portion of the City of Long Beach included in the 2020 Census Track and Block numbers:

Tracts (First 11 Digits) and Blocks (Last 4 Digits)

5730021005 5769011004 5763023003 5722011003
5730021004 5764031004 5763014001 5753001001
5722024012 5764021008 5769011005 5733001010
5722024011 5764011007 5763023012 5752013000
5752013011 5763023021 5769013005 5730021009
5763023014 5763014007 5763014011 5763023015
5763023017 5732011001 5733001014 5733002003
5763023018 5722011014 5732023007 5732022001
5763014010 5732021006 5753001003 5732011002
5763014009 5732022011 5751021011 5732011003
5722011009 5732022010 5763023016 5732011000
5722011008 5732022007 5752013010 5752013007
5752013009 5751021004 5751022011 5763014005
5752013006 5752023000 5722012012 5769013002
5753002001 5752023002 5753003002 5764011002
5753002002 5752022000 5733001000 5764011004
5722014000 5752022002 5731012002 5752021008
5732012012 5752013002 5732011011 5753003010
5731012006 5752013004 5752011005 5751021002
5732011008 5752013005 5732021000 5752013003
5731012004 5752012003 5752012009 5733001015
5732012015 5752012000 5722024018 5732023008
5751022008 5731011007 5732021001 5722011002
5751022010 5751011002 5752023001 5752011003
5752023005 5751011001 5752013001 5753002010
5752023004 5751011000 5722024020 5730022005
5752022004 5733002012 5764031005 5733002013
5752022003 5733002004 5733002011 5722024024
5730021007 5732021004 5732021005 5722024019
5730021008 5732022002 5752022005 5763023019
5730021006 5732022003 5722011007 5751022009
5733001009 5752011006 5752012002 5753002000
5732012011 5752011007 5752011001 5752013008
5732012010 5752012010 5732012013 5753002006
5731012003 5753003009 5752021004 5764031003
5752011004 5753003011 5733001002 5763023001
5753003007 5752021007 5722024001 5763014004
5752011002 5752021005 5751011007 5764021007
5733002005 5732023000 5730021002 5763023009
5733002006 5732023001 5732021007 5764022000
5733001001 5764031006 5733002007 5764021006
5732011009 5764011006 5732011007 5731011003
5732012014 5753001002 5732012008 5731011010
5753003006 5753003000 5763014000 5732011006
5753002009 5730021010 5763023020 5731012008
5753002007 5733002002 5722013000 5752012005
5763014012 5722024014 5733001005 5731012007
5769011000 5722024002 5730021011 5733002001

5779004009 5763014013 5722012007 5722011005
5732023004 5730022000 5732023009 5732022000
5730021000 5730022001 5732012005 5730022003
5730021003 5730022004 5732012004 5751022012
5764021005 5732012001 5732012002 5733002009
5763023013 5731011000 5731011005 5732022006
5763023011 5731011001 5731011004 5732012003
5763023010 5731011002 5733002014 5722011001
5763023008 5722011012 5732021008 5769011002
5764011003 5722011010 5732022008 5764011008
5732023012 5722011011 5733002008 5763023002
5732023011 5722024016 5779004010 5753003012
5732023010 5722024010 5779001006 5733001011
5733002000 5722024013 5731011008 5753002003
5751011006 5769011003 5731011009 5752022001
5751011005 5751021005 5732011005 5752023003
5752021006 5722024017 5732012006 5732011010
5732023002 5733001007 5732012007 5722024015
5730021001 5730022002 5722011004 5732023005
5732023003 5732022004 5722012011 5752012001
5722024000 5753001004 5722024023 5732022009
5764031001 5732011004 5722024021 5732012009
5769011001 5753003004 5722024022 5752021002
5764031000 5731012005 5751011003 5753003003
5764021000 5731012001 5752011000 5722011013
5764021001 5722012008 5752021000 5722011000
5764021002 5722011006 5752021001 5722012014
5764021003 5733002010 5752021003 5753003005
5764011000 5732022005 5752012007 5722012010
5764011001 5731011006 5752012006 5731012000
5763023000 5732012000 5752012004 5752012008
5763023004 5733001008 5751021008 5753003008
5763023005 5733001003 5751021007 5751021003
5763014003 5733001004 5753002004 5722011015
5763023006 5733001006 5753002005 5763014008
5763023007 5753003013 5733001012 5764011005
5763014002 5753003001 5733001013 5753001005
5763014006 5751011004 5732021003 5753002008
5764021009 5751021006 5732021002 5764031002
5769013004 5753001000 5732023006 5764021004
5722012009

The foregoing list of Tracts and Census Blocks constitute the SIXTH COUNCIL DISTRICT, which is a central district bound to the north by the Sunrise and Memorial Heights neighborhoods and includes the Long Beach Medical Center. This district also includes Southeast Wrigley, the southern half of the AOC7 neighborhood, and a portion of the Saint Mary's Neighborhood. The historic Black community is included in this district which contains a high level of homeowners, many of them seniors and families who have retained their homes through several generations. Members of the historic Black Community in this district also share the same religion, businesses, and culture. Additionally, this district has a high Asian population and includes portions of Cambodia Town identified through public input regarding the boundaries of the Cambodian community, which is connected by services, stores, and other cultural amenities.

G. District No. 7 shall comprise all of that portion of the City of Long Beach included in the 2020 Census Track and Block numbers:

Tracts (First 11 Digits) and Blocks (Last 4 Digits)

5726002007 9800111018 5731021003 5780002001
5779001010 5730031018 5731021001 5780002002
9800331061 5777003004 5727001007 5726002019
5779001011 5727001010 5731021005 5722024009
5780004015 9800111027 5731021007 5726002005
5780004010 5779001012 5731022016 5726003001
5780004017 5779001009 5777002008 5726003000
5780004018 9800331071 5722013002 5722022002
9800331029 5723012001 5777003007 5722022000
5777001002 5722022003 5777003005 5722022004
5725002008 9800111043 5723011003 5722022005
5780004005 5727001002 5723012006 5722021000
5725001000 5722023003 5723012004 5722021001
9800331031 5726001010 5723011002 5726001001
5726002013 5723012007 5722013001 5726001003
9800331030 5779001014 5777001009 5726001004
5726002015 9800111009 5723012002 9800111051
5726002009 9800111034 9800331073 5780001009
5722014010 9800331019 5722024004 5780003006
5722021006 9800111001 5722023010 5725001002
5725002003 9800111003 5722023009 5730042000
5725002001 9800331027 5722021015 5730042001
5725002004 5780001003 5722021004 5730042003
5725002007 5730044003 9800111010 5730031019
5725002005 5780003008 9800111015 5730031017
5725002002 5722023011 9800111016 5780004012
9800331074 5722021008 9800111005 5780002006
5780004006 5722013009 9800111045 5780002007
5722021011 5777003006 9800111044 9800111053
5722022009 5722021007 9800111021 9800111041
5726003007 9800111040 5727001008 9800111026
5726004001 5722022008 5727003007 5726004002
5722023002 5779001004 5727003008 5726004003
5780003009 5723011005 5727002003 5731022017
5731013000 5723012003 5730044002 5731021006
5731021004 5779001016 5730044004 5777002003
5727004006 5777001001 5730031009 5777002004
5726003003 5722013016 5730031007 5777003002

5780003007 9800111033 5730031015 5777003003
5780001011 5780002009 5780001005 5777001016
5722014003 5777003001 5780001010 5730044000
5727001000 5777002009 5780003011 9800331034
5777002013 9800331008 5780003010 5722014004
5730031020 5723011012 5730031006 5722014015
5780004016 5726003009 9800331022 5722014018
9800111054 5722014012 5726002017 5722014017
9800111022 5726004006 5726002011 5722014016
5726001009 5730041001 5726001013 5777003010
5726003005 5723011007 5726004005 5777003011
9800111004 5723012005 5726004004 5731022003
5722021005 9800331033 5722021014 9800331076
5730031008 5731022002 5722021013 5731021002
5780004014 5780004004 5779001008 9800331005
5730031000 5780002005 5777001015 5723011000
5726002010 5726004000 9800331066 5780004011
5722023006 9800111013 5722013003 9800111008
9800331011 5722014008 5722014001 9800111039
9800331016 5727002006 5722013004 9800111038
5727004010 5727001009 5722014006 9800111037
5727002002 9800111032 5722014007 9800111035
5780004019 9800111019 5722014009 9800111023
9800111012 9800111029 5722014011 9800331078
5777002012 5726003004 5777003008 9800331017
5726002001 5726003006 5725001001 5777002000
9800331062 5726001000 5726002018 5722013014
5726002006 5780001000 5723011014 5723012000
5722022001 5731022009 5723011013 5723011004
5730031001 5730042002 5723011011 9800331068
5780004009 5727003004 5779001015 9800331065
5777001008 5731013008 9800331018 9800331009
5723012008 5727001005 9800111046 9800331013
5780001007 5780002010 9800111047 9800331059
5777003009 5727003006 9800111048 5780004003
5730041004 5723011009 9800111049 5730031010
5730031021 9800331070 9800331020 5730041000
5723011015 5777001011 9800331021 5730041002
5777001013 5726002003 5440021011 5730041003
5722014005 5722024003 5777001006 5727004001
5731013001 5730043004 5777001005 5731013003
5731013002 5780003004 5777001000 5731013004
5731022008 5722023007 5718001038 5731022000
5727003001 5722021003 5725001003 5731022001
5779001017 5730031011 5731021008 5727001001
5777003000 5730031016 5731021009 5727001003
5780002003 5722013015 5731021010 5727003000
5780004013 9800331064 5731022018 5727003002
5731022011 9800331072 5727002007 5727004000
5727004003 5777001007 5727002005 5777002014
5780001006 5725002006 5727003010 5722021010
5727003003 5779001013 5727003009 5726003002
5727004008 9800331010 5727002008 5722022010
5731013009 5722024007 5777001003 5722022007
5731022014 5722024005 9800111007 9800111020
5722014013 5731013007 9800111031 5780004000
9800331057 5731013006 9800111030 5722022006
5777002001 5731022012 9800111017 5726001008
5779001019 5731022013 9800111024 5726001007
5722014002 5731022015 9800111006 5726002004
9800111036 5731022006 9800111028 5780004001
5722024008 5727001006 9800111052 5780004008
5722022011 5727003005 9800111050 5730031014
9800111042 5727004007 5726001002 5722014014
5722023004 5777001010 5777002002 5727001004
5730044001 5723011006 5780001002 5726002000
5730031005 5723012010 9800111002 5777001004
5722023008 5777001012 5779001007 5730042004
5726001014 5723011001 5725002000 5780002008
5723011010 5440021010 5730043000 5731013005
9800111025 5726001005 5730043002 5777002011
5726003008 5726001006 5730043003 5780001008
5726002002 5780004007 5730031002 5780002004
5722021002 5780002011 5730031003 5722013011
5730031004 5726002008 5780003005 5722013010
5730043001 5722024006 5780001001 9800331028
5780003000 5722023000 5780001004 5779001018
9800111011 5722023001 5780003001 9800331075
5718001037 5722023005 5780003002 5731022010
9800331060 5722021012 5780003003 5731022004
9800331063 5726002016 5727002004 5731022005
5777002007 5722021009 9800331014 5727004002
5722013012 5726001011 9800331025 5727004004
5722013013 5726001012 9800331023 5727004005
5780002012 5726002014 9800331058 9800331002
5731021000 5726002012 9800331026 9800331003
5731022007 5723011008 9800331024 9800331004
5727002000 5723012009 9800331015 9800331069
9800111014 5777001014 9800331001 5722013007
5722013005 9800331067 5730031012 5722013008
5777002010 5780004002 5730031013 5777002005
5731021011 5727004009 5780002000 5777002006
5722013006 5727002001

The foregoing list of Tracts and Census Blocks constitute the SEVENTH COUNCIL DISTRICT, which is a western district that follows the 710 Freeway and Los Angeles River (LA River) to the Port. This district includes the neighborhoods of Wrigley Heights, North Wrigley, and South Wrigley on the east and Arlington, Upper Westside, Westside, Westside South, and the western half of the Port on the western side. This district was identified as having concerns specific to the Port,

pollution, and socioeconomic factors. This district also includes the Pacific Hospital of Long Beach, Hudson Park, and Silverado Park.

H. District No. 8 shall comprise all of that portion of the City of Long Beach included in the 2020 Census Track and Block numbers:

Tracts (First 11 Digits) and Blocks (Last 4 Digits)

5717013028 5704021019 5715024003 5706031001
5717013026 5704023000 5706021005 5717013006
5717013009 5703031009 5706022006 5717013015
5717013008 5706031000 5703041008 5704042010
5704022008 5717013022 5703042008 5704021017
5704022007 5717011007 5703042010 5717031005
5704022006 5706031006 5703042011 5715023005
5704022001 5706031004 5717032002 5715051003
5717013011 5706011011 5706021009 5717012005
5703032008 5703043005 5706021010 5715023008
5704022009 5703042009 5715051000 5718001023
5717013013 5703041005 5716001002 5440021003
5717012013 5715023010 5717041005 5440021004
5704022010 5703032012 5717042003 5440021001
5717011010 5706012011 5717012003 5440021005
5706013003 5703043001 5717043009 5717013021
5715024008 5706011003 5717042004 5717011014
5717033004 5706011010 5718001026 5717011011
5718001029 5706024004 5704042011 5717011015
5717011009 5703041006 5704021011 5703042013
5717013019 5706011015 5715022005 5717033000
5717013020 5717041000 5715023004 5718001028
5706033003 5706032004 5715023003 5717043005
5703042001 5716001000 5717041006 5706021007
5717011003 5717041001 5704022003 5715023014
5703042007 5706024005 5715022000 5715024005
5706022000 5717013012 5715024002 5440021006
5706011008 5715024004 5717013030 5704022002
5718001027 5717011020 5717013027 5704021012
5718001025 5718001024 5718001020 5704022000
5717043010 5717013034 5718001019 5706021000
5715022008 5717013031 5717032005 5704021023
5715024001 5703043000 5717012007 5717011021
5715052013 5703042002 5717012008 5715024009
5717032003 5706031007 5704042009 5715051001
5717032001 5706011000 5704022004 5703032003
5717012000 5703031010 5704023006 5703042004
5715022009 5703041003 5704021024 5706031002
5717012009 5703041009 5704041024 5706031003
5717032007 5703042012 5715051012 5706022001
5706012014 5706022005 5717012006 5703042000
5717032000 5703031005 5717012010 5717011013
5717012002 5717042000 5717042006 5706032002
5704023001 5717013001 5716001001 5706032001
5704023002 5717013004 5717041010 5706032000
5717042001 5704023004 5715051009 5706033000
5715023002 5704023003 5715051004 5717013005
5715022004 5703042003 5717042005 5715051008
5717042002 5717041002 5717032004 5717013010
5715022006 5717041007 5717013023 5706012013
5715052000 5717013003 5440021000 5706031008
5717041008 5704021014 5704023007 5706011004
5717042007 5715022010 5704023008 5706011009
5717012012 5715023001 5718001033 5706022004
5703032005 5715023000 5704021025 5715052005
5715021006 5715022002 5717011002 5715024007
5717012015 5717013032 5717011005 5717011000
5715021002 5717013007 5717011006 5717011001
5717043001 5706022009 5717013018 5715051010
5715051007 5706021008 5715023007 5717031003
5717032006 5717041003 5715022011 5717031002
5704021020 5717043007 5715023009 5717011019
5704021022 5717033003 5715023011 5706024006
5440021009 5717013025 5717012016 5706022008
5717043004 5717013029 5717012017 5706013001
5715021004 5715052010 5717043003 5715022007
5715052011 5715052009 5717011008 5715023013
5715052003 5715052008 5717043000 5717013016
5715021003 5715052007 5717043002 5717013017
5717043008 5715052012 5717012014 5717033001
5704021015 5715024000 5717032008 5715052004
5704021010 5717043006 5717012011 5715052001
5715021005 5717033002 5715051002 5715021000
5717032009 5706024003 5704021021 5715051006
5717011012 5706021004 5704021013 5703031007
5704021018 5703042005 5704021009 5703032011
5715022003 5706033001 5718001030 5706032003
5717041011 5706011014 5779001002 5706024000
5715051005 5706011013 5440021007 5706021002
5717041009 5706011012 5440021008 5706012015
5715051011 5717031001 5718001032 5706012012
5706021001 5717031000 5718001031 5703041001
5703042006 5717011018 5706033002 5706012010
5703031008 5717011016 5717011022 5706022003
5703032006 5706021006 5717041012 5703043002
5703041002 5706013000 5779001001 5706024001
5706031009 5706013002 5715023012 5706011007
5703041000 5715022001 5704021016 5715024006
5717041004 5717013033 5704022011 5706011001
5717012004 5717013035 5718001021 5706011002
5717012001 5717013024 5718001022 5706011005
5703041007 5715023006 5440021002 5706011006
5717011017 5706024007 5715052002 5703031011
5706022007 5717031004 5715021001 5703032014
5717013014 5718001034 5706012009 5703032013
5715052006 5704023005 5706012008 5706022002
5717013002 5704022005 5703031006 5706031005
5717013000 5706021003 5703032010 5703043003
5704042008 5706024002 5717011004 5703041004

5703043006 5703043004

The foregoing list of Tracts and Census Blocks constitute the EIGHTH COUNCIL DISTRICT, which is a western district that includes the northern portion of the Bixby Knolls neighborhood, split at San Antonio Drive to meet population equality, and the neighborhoods of Paramount, Lindberg, Carmelitos, Addams, Dairy, and Sutter, all on the east side of the 710 Freeway and LA River. West of the 710 Freeway and LA River, this district includes the neighborhoods of Coolidge Triangle and Longwood, along with an area above the 405 Freeway that includes the West Basin of the Dominguez Gap Wetlands. This district also consists of the northern half of the East Basin of Dominguez Gap Wetlands between Del Amo Blvd and the Union Pacific Railroad.

I. District No. 9 shall comprise all of that portion of the City of Long Beach included in the 2020 Census Track and Block numbers:

Tracts (First 11 Digits) and Blocks (Last 4 Digits)

5704033006 5704032021 5704033008 5703061010
5703052006 5702031012 5704041014 5703061004
5703051007 5705022005 5705024005 5701001009
5703051011 5702022012 5705032000 5701002003
5703051005 5703052003 5705032004 5705022003
5704032002 5704032015 5705032005 5702041006
5704032008 5703061006 5703062001 5705021007
5703052009 5705031007 5703062000 5705042007
5703061011 5705023012 5703062002 5705041011
5705041005 5705023007 5703052008 5705041012
5705022009 5705031015 5702023001 5705041013
5704041018 5703031002 5702023002 5703051015
5702042010 5706023004 5702022002 5703051016
5702024006 5706012001 5702024004 5703052004
5705042013 5706012007 5702031005 5702022014
5702022015 5705024000 5702031011 5702022009
5704031006 5702021000 5702031008 5704041019
5705042016 5705024003 5702031006 5704031005
5703061012 5702032012 5704033011 5704032006
5702042002 5704041001 5705022010 5704041007
5704042003 5702023000 5705022011 5701001010
5702022003 5701002001 5705031000 5705023008
5704032007 5701001003 5705022004 5705023006
5702031015 5703051014 5705022012 5705023015
5702025003 5704042006 5705024012 5705023014
5702024010 5702041003 5703051000 5705031014
5702025015 5705023011 5704041015 5701002012
5705032006 5705023009 5704042002 5703032002
5704021002 5703031001 5704031003 5703032004
5702031013 5706012004 5704033010 5702025000
5702021002 5704032003 5702023006 5702025001
5704032005 5705024006 5702031003 5702025002
5704041006 5702021003 5704042000 5703032007
5702023007 5702024008 5704031001 5706023001
5705022002 5703051009 5701001007 5706023008
5704042001 5701001002 5703061001 5706023003
5704031002 5704021006 5703061007 5706023006
5702032004 5705032003 5705022013 5706023007
5705032001 5703052005 5705031001 5706012000
5705041001 5705024011 5705024007 5706012002
5702031016 5705031004 5705032013 5706012003
5704041002 5701002010 5705032010 5703031000
5702023004 5703032009 5705021004 5703032000
5702025010 5706023000 5705042005 5704041000
5705041010 5706012006 5705041009 5704041022
5703051010 5703051013 5705041007 5704021003
5702023012 5703051008 5703051003 5702032005
5702025004 5702042014 5705032008 5703051012
5702041011 5702042013 5705022007 5701001000
5702042009 5702023017 5705032009 5702041012
5702041010 5704041009 5705031002 5705022006
5705021010 5704032004 5703062008 5703051006
5702022011 5703051017 5705023001 5702041008
5702032014 5704041004 5705024010 5703051018
5705042009 5702042008 5705032012 5702031014
5701001001 5705021006 5705032011 5702041009
5704032020 5702023018 5701001004 5705021009
5703032001 5702041002 5701002005 5705021008
5706023002 5702032000 5703062006 5702042011
5706023005 5702032001 5703062005 5702042012
5706012005 5702024000 5704033003 5703031003
5701001006 5705042015 5704033004 5704033005
5703031004 5705022008 5704033013 5704041016
5705042001 5705024002 5703061008 5702042007
5701002006 5701002002 5704041005 5705042008
5705023002 5704032019 5704021004 5702032010
5705031003 5704021001 5705031012 5704041020
5703062004 5704033012 5703062007 5704021000
5703061005 5701002008 5703052002 5702032009
5705031010 5704032013 5702024005 5704032022
5705023003 5704042007 5705041016 5704041021
5703052007 5704032012 5702023011 5702032002
5702025014 5704032014 5702022008 5701001005
5705042006 5702024009 5702022005 5702031002
5705041006 5704021007 5702022006 5705041000
5702041005 5704021008 5702021001 5705024004
5702023009 5704041008 5702032008 5705023000
5702024002 5704032017 5705042004 5705031009
5702025009 5704032010 5702032007 5702031007
5702042004 5704032016 5702031010 5704032011
5702022001 5704032018 5703051004 5705042011
5702031009 5704032009 5705031011 5705032002
5704041010 5702032013 5705031008 5705021011

5702023008	5704042005	5705031006	5705042012
5705021005	5702032003	5705031005	5702022016
5702041004	5703052000	5703061003	5702022010
5703051001	5702025016	5703061009	5702031017
5702041007	5704031000	5701002011	5702032011
5704032001	5704033000	5705023005	5702022013
5705024001	5703052001	5705023004	5702023014
5702023016	5704041023	5703061000	5702023015
5702024007	5704041011	5705023010	5704042004
5704033002	5703051002	5705023013	5704041003
5702032006	5702042003	5705031013	5702022007
5701002000	5703052010	5701002004	5702023013
5704021005	5702041001	5702042005	5704032023
5702022000	5705022000	5702042006	5702025007
5702042000	5705041002	5704031004	5702025006
5705021003	5705041003	5704032000	5702025005
5704041012	5705041004	5704041017	5702031000
5704033001	5702041000	5702022004	5702031001
5703062003	5702042001	5702023010	5702025008
5701002007	5705022001	5702023005	5705042014
5702031004	5705021000	5702024003	5705042010
5704033007	5705021001	5702024001	5705041017
5705022014	5705021002	5702025013	5705041015
5705024008	5705042000	5702025012	5705041014
5705032007	5705042002	5702025011	5703061002
5705024009	5705042003	5701001008	5704033009
5705041008	5704041013	5701002009	5702023003

The foregoing list of Tracts and Census Blocks constitute the NINTH COUNCIL DISTRICT, which is the northernmost district with a southern boundary of Artesia Blvd to the east and South Street to the west of the 710 Freeway and LA River. The neighborhoods in this district include DeForest Park, Hamilton, Houghton Park, Nehyam, McKinley, Ramona Park, Saint Francis, and Collins to the east and College Square, adjacent to Compton Community College, and Starr King neighborhoods to the west. This district includes a historic Black community and a high number of Latino residents. Residents in this district are connected by shared businesses, cultures, values, interests, and community activities. (ORD-22-0021 § 1, 2022; ORD-11-0015 § 1, 2011; Ord. C-7837 § 1, 2002; Ord. C-7756 § 1, 2001: Ord. C-7430 § 1, 1996: Ord. C-7018 § 1, 1992; Ord. C-6932 § 1, 1991; Ord. C-6917 § 1, 1991: Ord. C-6553 § 1, 1989; Ord. C-6432 § 1, 1987; Ord. C-6388 § 1, 1987; Ord. C-5892 § 1, 1982; Ord. C-5810 § 12, 1982: Ord. C-5776 § 1, 1981: Ord. C-5252 § 1, 1976: prior code § 1700)

1.20.020 Final map maintained on City internet webpage.

As soon as practicable following the adoption of a final map of new councilmanic district boundaries by the Long Beach Independent Redistricting Commission pursuant to Article XXV of the City Charter, the City shall post and maintain such adopted map on an internet web page dedicated to redistricting for at least ten (10) years. (ORD-22-0021 § 2, 2022)

CHAPTER 1.21 RESERVED*

CHAPTER 1.22 RESERVED†

CHAPTER 1.24 RESERVED‡

CHAPTER 1.25 RESERVED**

CHAPTER 1.26 RESERVED††

***Editor's note**—ORD-23-0049 § 5, adopted Dec. 5, 2023, repealed Ch. 1.21, §§ 1.21.010—1.21.090 entitled "Specific Election Procedures," which derived from: ORD-17-0029 §§ 1—3, 2017; ORD-16-0002 §§ 1, 2, 2016; ORD-12-0007, § 1, 2012; ORD-07-0056 §§ 3, 4, 2007; ORD-07-0007 § 1, 2007; ORD-05-0023 § 1, 2005; Ord. C-7967 § 1, 2005; Ord. C-7797 § 1, 2002; Ord. C-7380 § 1, 1996; Ord. C-7358 § 1, 1995; and Ord. C-7332 § 1, 1995.

†**Editor's note**—ORD-23-0049 § 5, adopted Dec. 5, 2023, repealed Ch. 1.22, §§ 1.22.010—1.22.110 entitled "Referenda and Initiatives," which derived from: ORD-05-0013 § 1, 2005; Prior code § 2720; Ord. C-7621 § 1, 1999; and Ord. C-7284 § 1, 1994.

‡**Editor's note**—ORD-23-0049 § 5, adopted Dec. 5, 2023, repealed Ch. 1.24, §§ 1.24.010—1.24.150 entitled "Voter's Pamphlet," which derived from: ORD-16-0024 § 1, 2016; ORD-07-0056 §§ 2, 5, 2007; Ord. C-7842 § 1, 2003; Ord. C-7728 § 1, 2001; Ord. C-5850 § 1, 1982; and Ord. C-5462 §§ 1—13, 1979.

***Editor's note**—ORD-23-0049 § 5, adopted Dec. 5, 2023, repealed Ch. 1.25, §§ 1.25.010—1.25.030 entitled "Nominating Petitions," which derived from: ORD-10-0014, § 1, 2010; Ord. C-7163 § 1, 1993; Ord. C-7160 § 1, 1993; Ord. C-6955 § 1, 1991; and Ord. C-5851 § 1, 1982.

††**Editor's note**—ORD-23-0049 § 5, adopted Dec. 5, 2023, repealed Ch. 1.26, § 1.26.010 entitled "Mass Mailings," which derived from Ord. C-7010 § 1, 1992.

CHAPTER 1.27 SCHOOL BOARD DISTRICTS

1.27.010 Districts established.

In accordance with Section 2202(a) of the Long Beach City Charter, the five (5) school board districts for the board of education of the Long Beach Unified School District (hereinafter "school district") are established and designated as follows:

District 1:

BEGINNING AT THE INTERSECTION OF GREENLEAF BOULEVARD AND EAST ROAD

Easterly along the LBUSD boundary to Downey Avenue

Southerly along the LBUSD boundary to South Street

Westerly along the LBUSD boundary to Cherry Avenue

Southerly along the LBUSD boundary to Market Street

South on Cherry Avenue to Pacific Union Railroad Right of Way

West along Pacific Union Railroad Right of Way to Orange Avenue

South on Orange Avenue to Carson Street

East on Carson Street to Cherry Avenue

South on Cherry Avenue to Wardlow Road

West on Wardlow Road to Linden Avenue

North on Linden Avenue to 36th Street

West on 36th Street to Pacific Avenue

West along Interstate 405 to Del Mar Avenue

North on Del Mar Avenue to the LBUSD boundary

Northerly along LBUSD boundary to Greenleaf Boulevard

District 2:

BEGINNING AT THE INTERSECTION OF 223rd STREET AND HESPERIAN AVENUE

Easterly along the LBUSD Boundary to Los Angeles River Bed

Northerly along the LBUSD Boundary to Southern Pacific Railroad Right of Way/Del Mar Avenue

South along Southern Pacific Railroad/Del Mar Avenue to Interstate 405

Easterly along Interstate 405 to Pacific Avenue

North on Pacific Avenue to 36th Street

East on 36th Street to Linden Avenue

South on Linden Avenue to Wardlow Road

East on Wardlow Road to Cherry Avenue

South on Cherry Avenue to Spring Street

East on Spring Street to Junipero Avenue

South on Junipero Avenue to 28th Street

East on 28th Street to Temple Avenue

South on Temple Avenue to Willow Street

East on Willow Street to Redondo Avenue

South on Redondo Avenue to Pacific Coast Highway

East on Pacific Coast Highway to Alamitos Avenue

South on Alamitos Avenue to Anaheim Street

West on Anaheim Street to LBUSD Boundary

Northerly along LBUSD Boundary to 223rd Street

District 3:

BEGINNING AT THE INTERSECTION OF "I" STREET AND ANAHEIM STREET

East on Anaheim Street to Alamitos Avenue

North on Alamitos Avenue to Pacific Coast Highway

East on Pacific Coast Highway to Redondo Avenue

South on Redondo Avenue to 7th Street

West on 7th Street to Cherry Avenue

South on Cherry Avenue to LBUSD Boundary

Westerly along LBUSD Boundary to Navy Way

Northerly along LBUSD Boundary to Anaheim Street

District 4:

BEGINNING AT THE INTERSECTION OF INTERSTATE 405 AND LAKEWOOD BOULEVARD

Easterly along Interstate 405 to the LBUSD Boundary

Southerly along the LBUSD Boundary to Pacific Ocean

Inclusive of the Entirety of Santa Catalina Island

Westerly along the LBUSD Boundary to Cherry Avenue

North on Cherry Avenue to 7th Street

East on 7th Street to Redondo Avenue

North on Redondo Avenue to Stearns Street

East on Stearns Street to Euclid Avenue

North on Euclid Avenue to 23rd Street

East on 23rd Street to Lakewood Boulevard

North on Lakewood Boulevard to Interstate 405

District 5:

BEGINNING AT THE INTERSECTION OF SOUTH STREET AND PARAMOUNT BOULEVARD

Easterly along the LBUSD Boundary to the San Gabriel River Bed

Southerly along the LBUSD Boundary to Interstate 405

Easterly along Interstate 405 to Lakewood Boulevard

South on Lakewood Boulevard to 23rd Street

West on 23rd Street to Euclid Avenue

South on Euclid Avenue to Stearns Street

West on Stearns Street to Redondo Avenue

North on Redondo Avenue to Willow Street

West on Willow Street to Temple Avenue

North on Temple Avenue to 28th Street

West on 28th Street to Junipero Avenue

North on Junipero Avenue to Spring Street

West on Spring Street to Cherry Avenue

North on Cherry Avenue to Carson Avenue

West on Carson Avenue to Orange Avenue

North on Orange Avenue to the Pacific Union Railroad Right of Way

Easterly along the Pacific Union Railroad Right of Way to Cherry Avenue

North on Cherry Avenue to the LBUSD Boundary

Easterly, then Northerly along the LBUSD Boundary to South Street

(ORD-21-0041(Emerg.) § 1, 2021; ORD-11-0025, § 1, 2011; Ord. C-7785 § 1, 2002: Ord. C-7769 § 1, 2001: Ord. C-6919 § 1, 1991)

CHAPTER 1.28 RECORD RETENTION*

1.28.010 Records survive transition of officials.

All documents prepared, received or maintained by the office of the Mayor, City Councilmembers, by any elected City official, and by the head of any City Department, are the property of the City. The originals of these documents shall be maintained consistent with State law and the records retention policies of the City as set forth in the City Charter, and by administrative regulation. (ORD-06-0059 § 1 (part), 2006)

1.28.020 Schedules.

With the assistance of the City Clerk, record retention schedules shall be prepared by the Mayor and each City Councilmember, the City Manager for any department under his or her direction and control, and by the elective officers for their respective departments. Said retention schedules shall be submitted to the City Council for approval. The retention schedules shall designate and describe each separate type, class or series of City records and shall provide: (a) the length of time that each type, class or series of records must be maintained; (b) when any of the records may be transferred from the department to the City record center; (c) when duplicate records may be destroyed pursuant to Section 1.28.030; and (d) when requests may be submitted to the City Attorney for consent and to the City Council for approval of destruc-

***State law reference—**Provisions relating to the destruction of City records, see Gov. C. § 34090 et seq.

Note—Prior code history: Prior code §§ 2760—2762.

tion of original or record copies of City records. (ORD-06-0059 § 1 (part), 2006)

1.28.030 Destruction—Approval required.

Original or record copies of City records which are not required by law to be permanently maintained shall not be destroyed until a request for the destruction of each original or record copy or class or series of such records has received the prior written consent of the City Attorney and the prior approval of the City Council in accordance with the provisions of the California Government Code relating to the destruction of public records. Such consent and approval of a request for destruction of a type, class or series of records shall not constitute continuing authority for subsequent destruction of the same type, class or series of records, but the consent and approval required by this Section shall be obtained prior to each such subsequent destruction. (ORD-06-0059 § 1 (part), 2006)

1.28.040 Destruction—Duplicate records.

The Mayor and each City Councilmember, the elective department heads, the City Manager or a Department head who has been given written authorization by the City Manager, may destroy or cause the destruction of any duplicate City record, which is less than five (5) years old, if the Mayor, Councilmember, elective officer, City Manager, or duly authorized department head has determined to his or her satisfaction that the duplicate record does not constitute the official record copy, and that the duplicate record is no longer required for use in the conduct of City business, and that the duplicate copy has been kept for the time specified by the record retention schedule as approved by the City Council. (ORD-06-0059 § 1 (part), 2006)

CHAPTER 1.32 GENERAL PENALTY*

1.32.010 Criminal violations—Misdemeanors and infractions.

A. No person shall violate any provision or fail to comply with any of the mandatory requirements of this Code. Any person violating any of the provisions or failing to comply with any of the mandatory requirements of this Code shall be guilty of a misdemeanor, unless such violation or failure is specifically designated to be an infraction or is prosecuted as an infraction, in which case such person is guilty of an infraction. It shall be a separate offense for each and every day or any portion thereof in which a violation of this Code or a failure to comply with the mandatory requirements of this Code is committed, continued or permitted.

B. Any person convicted of a misdemeanor under the provisions of this Code, unless provision is otherwise made herein, shall be punishable by a fine of not more than one thousand dollars ($1,000.00), or by imprisonment in the City or county jail for a period not exceeding six (6) months, or by both such fine and imprisonment. Any person convicted of an infraction under the provisions of this Code, unless provision is otherwise made herein, shall be punishable by a fine of not more than one thousand dollars ($1,000.00).

C. In addition to the penalties provided in this Section, any condition caused or permitted to exist in violation of any of the provisions of this Code shall be deemed a public nuisance.

D. The City may summarily abate any public nuisance as defined in this Section.

E. In the sole discretion of the City Prosecutor, any violation of this Code, unless provision is otherwise made herein, may be prosecuted as either a misdemeanor or an infraction. Notwithstanding the foregoing, violations of Municipal Code Sections 6.16.080, 6.16.190, 6.16.260(C),

*State law references—Provisions authorizing cities to impose fines up to five hundred dollars ($500.00) or imprisonment up to six (6) months or both such fine and imprisonment, see Gov. C. § 36901; for provisions authorizing the reduction of City ordinance violations to infractions, see Gov. C. § 36900.

6.16.270(D) 6.16.290(C), 18.08.050, 18.16.150, 18.20.080, 21.31.245(C), 21.51.227 and 21.41.170 shall not be prosecuted as infractions.
(ORD-09-0022, § 1, 2009; ORD-05-0001 § 1, 2005; Ord. C-7815 § 1, 2002; prior code § 1200)

1.32.020 Infractions.

A. Violation of or failure to comply with any provision of Title 10 of this Code constitutes an infraction as provided in Section 40000.1 of the California Vehicle Code, and penalties for such infractions shall be as set forth in Article I, Chapter I, Division 18 of the Vehicle Code.

B. 1. As an alternative to the penalty provided in Section 1.32.010 of this Code, violation of or failure to comply with any provision of or condition lawfully imposed under the below enumerated provisions of Title 21 of this Code on and following the dates indicated may be deemed to constitute an infraction as provided in Section 17 of the California Penal Code, and penalties for such infractions shall be as set forth in Subdivision 19e of the Penal Code:

a. On and after January 1, 1992, the following sections of the Long Beach Municipal Code as they then exist or may be thereafter amended: all sections included in Chapter 21.44.

b. On and after a date to be established in and by administrative rules and regulations promulgated pursuant to Subsection 1.32.060.D., in addition to the section set forth in Subsection B.1.a. of this Section, the following section of the Long Beach Municipal Code as they then exist or may be thereafter amended: Section 21.21.404.

c. On and after a date to be established in and by administrative rules and regulations promulgated pursuant to Subsection 1.32.060.D., in addition to the sections set forth in Subsections B.1.a. and B.1.b. of this Section, the following sections of the Long Beach Municipal Code as they exist or may be thereafter amended: Sections 21.42.030, 21.51.205, 21.51.235, 21.31.110, 21.32.110, 21.33.110, 21.34.110, 21.35.110, 21.36.110, 21.37.050 and all sections included in Chapters 21.45 and 21.53.

2. a. Whenever a person legally controlling property other than the owner is prosecuted for a violation of a provision of Title 21 of this Code pursuant to this Section, the court may, on the request of such person, take appropriate proceedings to make the owner of the property a co-defendant. In the event it is found that the person legally controlling the property had reasonable grounds to believe that the property controlled by him or her did not violate such provisions, and in the event the owner is found guilty, the court may dismiss the charges against the person legally controlling the property.

b. Whenever a person other than a person legally controlling the property or the owner of the property is prosecuted for violations of a provision of Title 21 of this Code pursuant to this Section, the court may, on the request of such person, take appropriate proceedings to make the person legally controlling the property or the owner of the property, or both, co-defendants. In the event that the person legally controlling the property or the owner of the property or both are found guilty, the court may dismiss the charges against the person first cited. (Ord. C-6960 § 1, 1992: Ord. C-5398 § 14, 1978: prior code § 1200.2)

1.32.030 Citation in lieu of arrest.

A. If any person is arrested for the violation of any provision of this Code, and such person is not taken before a magistrate pursuant to the provisions of Section 849 of the Penal Code of the State, the arresting officer shall prepare a written notice to appear in court, or before a person authorized to receive a deposit of bail, containing the name and address of such person, the offense charged, and the time and place where and when such person shall appear in court.

B. The time specified in the notice to appear shall be not less than five (5) days after such arrest.

C. The place specified in the notice to appear shall be either:

1. Before a judge in a division of the Los Angeles County Superior Court, Limited Jurisdiction, South District, Long Beach Courthouse; or

2. Before a person authorized to accept a deposit of bail.

D. The officer shall deliver one (1) copy of the notice to appear to the arrested person, and the arrested person, in order to secure his or her release, must give his or her written promise so to appear by signing two (2) copies of the notice which shall be retained by the officer. Thereupon the arresting officer shall forthwith release the person arrested from custody.

E. The officer shall, as soon as practicable, file a copy of the notice with the magistrate specified therein.

F. The defendant may, prior to the date upon which he or she promised to appear, deposit with the magistrate, or the person authorized to receive a deposit of bail, the amount of bail set by such magistrate. Thereafter, at the time when the case is called for arraignment before the magistrate, if the defendant does not appear either in person or by counsel, the magistrate may declare the bail forfeited, and may order that no further proceedings shall be had in such case. Upon the making of an order that no further proceedings be had, all sums deposited as bail shall forthwith be paid into the County Treasury for distribution pursuant to Section 1463 of the Penal Code.

G. Any person wilfully violating his or her written promise to appear in court or before a person authorized to receive a deposit of bail is guilty of a misdemeanor regardless of the disposition of the charge upon which he or she was originally arrested.

H. When a person signs a written promise to appear at the time and place specified in the written promise to appear and has not posted bail as provided in Section 853.1 of the Penal Code, the magistrate shall issue and have delivered for execution a warrant for his or her arrest within twenty (20) days after his or her failure to appear as promised, or if such person promises to appear before an officer authorized to accept bail other than a magistrate and fails to do so on or before the date which he or she promised to appear, then, within twenty (20) days after the delivery of such written promise to appear by the officer to a magistrate having jurisdiction over the offense.

I. No warrant shall be issued on the charge for the arrest of a person who has given his or her promise to appear in court or before a person authorized to receive a deposit of bail unless and until he or she has violated such promise, or has failed to deposit bail, to appear for arraignment, trial or judgment, or to comply with the terms and provisions of the judgment as required by law. (ORD-06-0006 § 1, 2006; prior code § 1200.1)

1.32.040 Failure to obtain or exceeding limits of license or permit—Grounds for suspension, revocation or denial.

A. Whenever this Code requires that a permit or license be obtained before an activity may be commenced or conducted, any person who commences or conducts such activity without first obtaining the required and appropriate license or permit shall be deemed in violation of the provisions of this Code. Such violation may constitute a ground for denial of an application for a license or permit governing that specific activity. The use of premises, amusement machines, games or devices licensed or permitted pursuant to this Code for other than their intended use or not in compliance with the license or permit issued shall constitute grounds for revocation or suspension of the license.

B. No person, whether as principal, agent, clerk, employee, partner or otherwise, either for himself or herself or any other person, or for any body corporate, or as an officer of any corporation, or otherwise, shall commence or carry on any business, trade, calling, profession or occupation for which a license is required by this Code without first having procured such license; and such person shall comply with all of the applicable requirements or provisions of this Code.

C. Any person engaged in a business or activity in an unincorporated territory or in another incorporated area which is annexed to the City shall obtain a City business or other license, if required by this Code, within thirty (30) days after the effective date of annexation. (Ord. C-5525 § 2, 1979: prior code § 1200.3)

1.32.050 Working prisoners.

A. Performing labor on public works. Persons confined in the City jail under a final judgment of imprisonment rendered in a criminal action or proceeding may be required to perform labor on the public streets or other public property or works within the City under direction of the Chief of Police. The phrase "streets or other public property or works within the City" as used in this Section, includes, among other things, clerical and menial labor in the City jail, and any such prisoners so confined may likewise be transferred to the City jail honor farm designated as "Rancho Esperanza", for labor thereat as directed by the Chief of Police.

B. Escape. Any prisoner performing labor as above directed, who escapes while so laboring or while going to or returning from such labor, shall be guilty of a misdemeanor. (Prior code § 1201)

1.32.060 Infraction procedures.

A. Any violation of the zoning regulations specified in Subsection 1.32.020.B. may, in addition to any other available enforcement or penalty provisions, also be treated by issuance of citation in accordance with the provisions of this Section.

B. Citations shall be issued by, and only by, persons duly employed by the City of Long Beach's Department of Planning and Building as a combination Building Inspector, a senior combination Building Inspector, a principal Building Inspector, an assistant planner II or a planner I, II or III.

1. No citation shall be issued until after the property owner or person legally controlling the property has been served a notice of violation/failure and has been provided ten (10) days after such service to correct the violation/failure, provided that no such notice shall be required for any offense set forth in Subsection 1.32.020.B., which is deemed by the Director of Planning and Building to involve a use or an activity that is, by its nature, temporary such as temporary signs, temporary uses or similar activities.

2. If the violation/failure continues to exist after the period to correct has expired, the Director of Planning and Building may direct the issuance of an infraction citation pursuant to this Section the fine for which is established at one hundred dollars ($100.00), plus penalties and assessments as ordered by the court.

3. If the violation/failure continues to exist, or reoccurs for or within six (6) months of the issuance of said infraction citation, the Director of Planning and Building may direct the issuance of a second infraction citation, the fine for which is hereby established as two hundred fifty dollars ($250.00), plus penalties and assessments as ordered by the court.

4. If the violation/failure continues to exist or reoccurs for or within six (6) months of the issuance of a second citation pursuant to Subsection B.3 of this Section, the Director of Planning and Building shall, with the concurrence of the City Prosecutor, proceed to treat the matter as a misdemeanor, the fine for which is established at one thousand dollars ($1,000.00), plus penalties and assessments as ordered by the court.

C. All notices, forms, filings, arrests, bail settings or forfeitures or any other applicable matters preemptively prescribed by State law relative to infraction or misdemeanor prosecutions shall be conducted or provided as required or prescribed by the applicable parts of Chapter 5C of Title 3 of Part 2 of the California Penal Code.

D. The Director of Planning and Building is delegated the authority to, and may, from time to time, promulgate such administrative rules and regulations as may be necessary and proper to effectuate the purposes of this Section and to facilitate the administration and enforcement of its provisions. The scope of the Director's delegated authority shall include, but shall not be limited to promulgation of rules and regulations defining procedures for the evaluation of the use of citation procedures in connection with Title 21 offenses, the implementation of Subsections 1.32.020.B.2. and 3., and the modification or establishment of definitions for words and phrases used in this Section including "person legally controlling the property". Such rules and regulations shall be prepared so as to be consistent with all

applicable provisions of law including those set forth in Chapter 5C of Title 3 of Part 2 of the California Penal Code.

E. In addition to any other remedy, the City, in its discretion, may bring any civil action including, but not limited to, injunctive relief and nuisance abatement to enforce the provisions of the zoning regulations.

F. All costs incurred by the City in connection with such abatement of any violation of this Title, once notified, shall become an indebtedness of the owner(s) of said structure(s) or premises, as well as a lien upon the affected property. Any person aggrieved by the imposition of costs pursuant to this Subsection may appeal such imposition within fifteen (15) days of the date of a notice/demand for payment in accordance with procedures as set forth in Section 8.56.120 of this Code.

G. Each day of recurrence of any violation or failure set forth in Subsection 1.32.020.B. shall constitute a separate offense and may be treated as such pursuant to this Section, and nothing in this Section shall preclude any enforcement under the provisions of the Long Beach Municipal Code including those set forth in this Section 21.10.080.

H. As used in this Section, the following words and phrases shall have the meanings indicated as follows:

1. "Costs" means all actual costs incurred by City in the enforcement proceedings undertaken pursuant to this Section on and after a decision is made by the Director of Planning and Building to proceed with either misdemeanor or civil abatement proceedings or both.

2. "Person legally controlling the property" means the owner, lessee or sublessee of the property or the person designated or employed by the owner, lessee or sublessee to manage the property.

3. "Service" means either the depositing of the matter to be served in the United States Mail, postage prepaid, return receipt requested; or personal delivery of the matter to the person or persons to whom it is addressed; or posting of the matter on real property which is involved in the matter to be served. Service by such methods shall be deemed complete on the date that the recipient signs the mail return receipt or on the date of personal delivery or on the date of posting indicated on an affidavit signed by the person posting the matter. (Ord. C-6960 § 2, 1992)

Title 2

ADMINISTRATION AND PERSONNEL

Chapter 2.01 The Long Beach Campaign Reform Act

Division I. Title, Findings and Purpose

2.01.110 Title.

2.01.120 Findings and declarations.

2.01.130 Purpose.

Division II. Definitions

2.01.210 Definitions.

2.01.220 Interpretation.

Division III. Contribution Limitations

2.01.310 Limitations on contributions from persons.

2.01.320 Prohibition on nonelection cycle contributions.

2.01.330 Reserved.

2.01.340 Loans.

2.01.350 Reserved.

2.01.360 Treatment of money received as contributions, income or gifts.

2.01.370 One campaign committee and one checking account per candidate.

2.01.380 Contributions for officeholder expense fund.

2.01.390 Reserved.

2.01.395 IntraCandidate transfers

Division IV. Expenditure Ceilings and Matching Funds

2.01.410 Expenditure ceilings.

2.01.420 Time periods for expenditures.

Division V. Acceptance of Expenditure Ceilings

2.01.510 Candidate acceptance or rejection of expenditure ceilings.

Division VI. Independent Expenditures

2.01.610 Reserved.

2.01.620 Reserved.

2.01.630 Notice of independent expenditures.

Division VII. Additional Disclosure Requirements

2.01.710 Reserved.

2.01.720 Additional pre-election campaign statement.

2.01.730 Reserved.

Division VIII. Agency Responsibility

2.01.810 Duties of the City Clerk.

Division IX. Campaign Account Designation

2.01.910 Campaign account created.

Division X. Disposal of Surplus Funds

2.01.1010 Definitions.

2.01.1020 Retention of twenty-five thousand dollars by officeholders.

2.01.1030 Disposal of surplus funds.

Division XI. Enforcement

2.01.1110 Criminal actions.

2.01.1120 Civil action.

2.01.1130 Injunctive relief.

2.01.1140 Cost of litigation.

2.01.1150 Disqualification.

Division XII. Miscellaneous Provisions

2.01.1210 Inflation/deflation.

2.01.1220 Applicability of other laws.

2.01.1230 Severability.

2.01.1240 Amendments.

Chapter 2.02 Reserved

Chapter 2.03 City Council

Article I. Rules of the Council

2.03.010 Adopted.

2.03.020 Meetings.

2.03.030 Presiding officer.

2.03.040 Order of business.

2.03.050 Voting.

2.03.060 Committees.

2.03.065 Confirmation procedure.

2.03.070 Reports.

2.03.075 Fiscal impact analysis for citizen advisory committees and commissions.

2.03.076 Fiscal impact statement for agenda items authored by a Councilmember.

2.03.080 Ordinances and amendments.

2.03.085 Resolution may establish fees and charges.
2.03.090 Hearings and debates.
2.03.100 Decorum.
2.03.110 Suspension of rules.
2.03.120 Manager and City Attorney attendance.
Article II. General Regulations
2.03.140 Disturbing Council meetings.
Article III. Legislative Department
2.03.170 Appointment of employees.
2.03.180 Administration of department.

Chapter 2.06 City Officers

2.06.010 City offices—Business hours.
2.06.020 Bonds.
2.06.050 Mayor's expenses.
2.06.060 Reserved.

Chapter 2.07 Code of Conduct and Ethics

2.07.010 Values statement.
2.07.020 Written pledge.
2.07.030 Required ethics training.

Chapter 2.08 Lobbyists

2.08.010 Interpretation.
2.08.020 Definitions.
2.08.030 Registration.
2.08.040 Annual registration renewal.
2.08.050 Termination of lobbyist status.
2.08.060 Active status.
2.08.070 Registration fees.
2.08.080 Required registration information.
2.08.090 Disclosure.
2.08.100 Subsequent disclosures.
2.08.110 Semi-annual reports.
2.08.120 Records retention.
2.08.130 Lobbyist identification.
2.08.140 Prohibitions.
2.08.150 Gifts.
2.08.160 The City Clerk.

2.08.170 Criminal penalties.
2.08.180 Injunction.
2.08.190 Practice restrictions.
2.08.200 Limitation of actions.
2.08.210 Cost of litigation.
2.08.220 Review of regulations.

Chapter 2.09 Revolving Door Restrictions

2.09.010 Definitions.
2.09.020 Prohibition.
2.09.030 Exceptions.
2.09.040 Enforcement.

Chapter 2.10 Volunteers

2.10.010 Short title.
2.10.020 Findings and declaration.
2.10.030 Purpose and goals.
2.10.040 Definitions.
2.10.050 Volunteer coordinator.
2.10.060 Intradepartmental coordination task force.
2.10.070 City Attorney assistance.

Chapter 2.12 Fire Department

2.12.010 Uniforms.

Chapter 2.15 Police Department

2.15.010 Report copies.
2.15.020 Fingerprinting fees.
2.15.030 Training—Policy.
2.15.040 Training—Standards.
2.15.050 Uniforms.
2.15.060 Reserve Corps—Established.
2.15.070 Reserve Corps—Direction.
2.15.080 California Law Enforcement Telecommunications System.

Chapter 2.17 Department of Disaster Preparedenss and Emergency Communications

2.17.010 Public Safety Dispatchers - recruitment and training standards.

Chapter 2.18 Advisory Boards, Commissions and Committees

2.18.010 Title and purpose.

2.18.020 Applicability.
2.18.030 Existing boards and commissions.
2.18.040 Staff support.
2.18.050 General regulations.
2.18.060 Selection of officers.
2.18.070 Meetings.
2.18.080 Rules and regulations.
2.18.090 Reports.
2.18.100 City Council duties.
2.18.110 Criteria for review.

Chapter 2.21 Representation on Board of Directors of the Metropolitan Water District of Southern California

2.21.010 Appointments.
2.21.020 Term.
2.21.030 Incumbent.
2.21.040 Removal.
2.21.050 Compensation.

Chapter 2.24 Board of Health and Human Services

2.24.010 Created.
2.24.020 Members.
2.24.030 Duties of Department Director and Health Officer.
2.24.040 Meetings.
2.24.050 Advisory duties.
2.24.060 Appropriation for expenses.

Chapter 2.27 Airport Advisory Commission

2.27.010 Created.
2.27.020 Members.
2.27.030 Duties.

Chapter 2.33 Citizen's Advisory Commission on Disabilities

2.33.010 Created.
2.33.020 Members.
2.33.030 Duties.

Chapter 2.36 Economic Development Commission

2.36.010 Created.
2.36.020 Appointment, composition and terms of office.

2.36.030 Duties.
2.36.040 Organization.

Chapter 2.38 Climate Resilient and Sustainable City Commission

2.38.010 Created.
2.38.020 Purpose.
2.38.030 Authority over City officers and employees.
2.38.040 Members.
2.38.050 Term of office.
2.38.060 Applicability of Chapter 2.18 of the Long Beach Municipal Code.

Chapter 2.42 Reserved

Chapter 2.44 Equity and Human Relations Commission

2.44.010 Created.
2.44.020 Duties.
2.44.030 Members.
2.44.040 Authority.
2.44.050 Applicability of Chapter 2.18.

Chapter 2.45 Commission for Women and Girls

2.45.010 Created.
2.45.020 Definition.
2.45.030 Duties.
2.45.040 Members.
2.45.050 Term of office.
2.45.060 Authority.
2.45.070 Applicability of Chapter 2.18.

Chapter 2.46 Industrial Development Authority

2.46.010 Need declared.
2.46.020 Duties generally.
2.46.030 Board of Directors designated.
2.46.040 Advisory Board designated.
2.46.050 Official title.
2.46.060 Charter authority not limited.

Chapter 2.48 Marine Advisory Commission

2.48.010 Created.
2.48.020 Members.

2.48.030 Duties.

Chapter 2.50 Technology and Innovation Commission

2.50.010 Created.
2.50.020 Purpose.
2.50.030 Authority over City officers and employees.
2.50.040 Duties.
2.50.050 Members.
2.50.060 Organization.
2.50.070 Term of office.
2.50.080 Applicability of Chapter 2.18 of the Long Beach Municipal Code.

Chapter 2.52 Public Safety Advisory Commission

2.52.010 Created.
2.52.020 Purpose.
2.52.030 Authority over City officers and employees.
2.52.040 Members.
2.52.050 Term of office.
2.52.060 Applicability of Chapter 2.18 of the Long Beach Municipal Code.

Chapter 2.54 Recreation Commission

2.54.005 Authority.
2.54.010 Appeal of decisions.

Chapter 2.56 Commission on Youth and Families

2.56.010 Created.
2.56.020 Purpose.
2.56.030 Duties.
2.56.040 Members.
2.56.050 Applicability of Chapter 2.18 of the Long Beach Municipal Code.

Chapter 2.57 Advisory Commission on Aging

2.57.010 Created.
2.57.020 Members.
2.57.030 Duties.

Chapter 2.60 Veterans Affairs Commission

2.60.010 Created.
2.60.020 Purpose.
2.60.030 Members.

2.60.040 Organization.

Chapter 2.63 Cultural Heritage Commission

2.63.010 Purpose.
2.63.020 Definitions.
2.63.030 Created—Members.
2.63.040 Duties.
2.63.050 Criteria for designation of Landmarks and Landmark Districts.
2.63.060 Procedures for designation of a Landmark.
2.63.070 Procedures for designation of a Landmark District.
2.63.080 Procedures for certificate of appropriateness.
2.63.090 Hearings and determinations.
2.63.100 Appeals.
2.63.110 Easements and development rights.
2.63.120 Penalties.
2.63.130 Incentives for preserving cultural resources.

Chapter 2.66 Reserved

Chapter 2.69 Civil Defense

2.69.010 Purpose.
2.69.020 Emergency defined.
2.69.030 Emergency Council—Members.
2.69.040 Emergency Council—Duties.
2.69.050 Emergency Council—Responsibilities.
2.69.060 Director—Duties.
2.69.070 Director—Emergency powers.
2.69.080 Emergency organization.
2.69.090 American Red Cross duties.
2.69.100 Expenditures.
2.69.110 Violations.

Chapter 2.72 Equal Opportunity Contract Compliance Program

2.72.010 Purpose.
2.72.020 Applicability.
2.72.030 Definitions.
2.72.040 Nondiscrimination clause required.
2.72.050 Construction contracts for ten thousand dollars or more.
2.72.060 Nonconstruction contracts for twenty thousand dollars or more.
2.72.070 Contractor records.

2.72.080 Compliance and enforcement.
2.72.090 Noncompliance sanctions.
2.72.100 Appeals.
2.72.110 Implementing rules and regulations.
2.72.120 Notice to contractors of requirements.
2.72.130 Exemptions.

Chapter 2.73 Equal Benefits to Employees of City Contractors

2.73.010 Title and purpose.
2.73.020 Definitions.
2.73.030 Contractors subject to requirements.
2.73.040 Nondiscrimination in provision of benefits.
2.73.050 Required contract provisions.
2.73.060 Waivers and exemptions.
2.73.070 Retaliation and discrimination prohibited.
2.73.080 Employee complaints to City.
2.73.090 Remedies.

Chapter 2.75 Ambulance Service

2.75.010 Rates.
2.75.020 Exemptions.

Chapter 2.78 Unclaimed Property

2.78.010 Inventory.
2.78.020 Sale—Notice.
2.78.030 Weapons, burglar's tools and liquor.
2.78.040 Sale—Date.
2.78.050 Sale—Deposit of proceeds.
2.78.060 Unsold property disposition.

Chapter 2.81 Public Safety Building

2.81.010 Defined.
2.81.020 Purpose.
2.81.030 Limitation of access and regulation of use.
2.81.040 Compliance with regulations required.
2.81.050 Sign posting.
2.81.060 Ejection of violators.

Chapter 2.83 Claims Procedure

2.83.010 General.

2.83.020 Special claims procedure.

Chapter 2.84 Contracts

Division I. General Supplies and Materials

2.84.010 Authority of City Purchasing Agent and others to contract.
2.84.020 Nondiscrimination in City contracts and purchase orders.
2.84.030 Local preference.
2.84.040 Establishment of insurance requirements for contracts, leases and the like.

Division II. (Repealed)

Division III. Private Work or Services Contracts

2.84.050 Authorized private contracts.

Division IV. Real Estate Purchase Contracts

2.84.060 Real estate purchase contracts.

Division V. Procurement and Management of Job Order Contracts

2.84.070 Intent.
2.84.080 Review.
2.84.090 Prequalification.
2.84.100 Term.
2.84.110 Contract performance.
2.84.120 Non-prepriced items.
2.84.130 Non-exclusive.
2.84.140 Conflicts.
2.84.150 Evaluation.
2.84.160 Document availability.
2.84.170 Suspensions.

Chapter 2.85 Procurement During a Proclaimed Emergency or Disaster

2.85.010 Purpose.
2.85.020 Definitions.
2.85.030 Purchasing authority during a Proclaimed Emergency or Disaster.
2.85.040 Procurement procedures during a Proclaimed Emergency or Disaster.
2.85.050 Post—Award.

Chapter 2.86 Public Contracts

2.86.010 General.
2.86.020 Definitions.
2.86.030 Mandatory prebid conference.

2.86.040 Work by City forces; plans and specifications.
2.86.050 Contract provisions for architectural design services.
2.86.060 Alternates in bids.
2.86.070 Claims and the payment of claims related to public works contracts.
2.86.080 Bidder's security.
2.86.090 Rebids and phases of work.

Chapter 2.87 Public Works Contracts and Wages

Division I. Contracts

2.87.010 Definitions.
2.87.020 Subcontractor—Identification.
2.87.030 Subcontractor—Substitution prohibited.
2.87.040 Subcontractor—Failure to specify.
2.87.050 Subcontractor—Substitution authorization.
2.87.060 Subcontractor—Emergency requirement.
2.87.070 Subcontractor—Responsibility for work.
2.87.080 Violation—Contract cancellation.

Division II. Wages

2.87.090 Public work defined.
2.87.100 Rates—Determination.
2.87.110 Rates—Amendment.
2.87.120 Bid advertisement to include rates.
2.87.130 Contract—Compliance with wage rates.
2.87.140 Contract—Rates incorporated.

Chapter 2.90 Environmental Impact Reports

2.90.010 Determination of requirement.
2.90.020 Fees.

Chapter 2.93 Conduct of Hearings

2.93.010 Applicability.
2.93.020 Oath or affirmation.
2.93.030 Rules of evidence.
2.93.040 Examination of witnesses.
2.93.050 Hearing procedure—City Council.
2.93.060 Hearing procedure on contractor's or vendor's nonresponsibility.
2.93.070 Hearing procedure on contractor's or vendor's debarment.

Chapter 2.96 Judicial Review of Administrative Decisions

2.96.010 Statute of limitations.

Chapter 2.97 Emergency Response Cost Recovery

2.97.010 Definitions.

2.97.020 Emergency response cost recovery program.

2.97.030 Collection of costs.

Chapter 2.99 Records Reproduction Cost Recovery

2.99.010 Duplication costs.

CHAPTER 2.01 THE LONG BEACH CAMPAIGN REFORM ACT

DIVISION I. TITLE, FINDINGS AND PURPOSE

2.01.110 Title.

This Chapter 2.01 may be cited as the Long Beach Campaign Reform Act. (Ord. C-7283 § 1, 1994; Prop. M, 6-7-94, eff. 6-24-94)

2.01.120 Findings and declarations.

In enacting this Chapter 2.01, the following findings and declarations are adopted:

A. Monetary contributions to political campaigns are a legitimate form of participation in the political process, but the financial strength of certain individuals or organizations should not permit the exercise of a disproportionate or controlling influence on the election of candidates.

B. The rapidly increasing costs of political campaigns have forced many candidates to raise larger and larger amounts of money from individuals and interest groups with a specific financial stake in matters before the City Council. This has caused a public perception that votes are being improperly influenced by monetary contributions. This perception is undermining the credibility and integrity of the governmental process.

C. Candidates are raising less money in small contributions and more money in large individual and organizational contributions. This has created the public impression that the small contributor has an insignificant role to play in political campaigns.

D. High campaign costs are forcing officeholders to spend more time on fundraising and less time on the public's business. The constant pressure to raise contributions is distracting officeholders from urgent governmental matters.

E. Officeholders are responding to high campaign costs by raising large amounts of money in off-election years. This fundraising distracts them from important public matters, encourages contributions which may have a corrupting influence and gives incumbents an overwhelming and patently unfair fundraising advantage over potential challengers.

F. The integrity of the governmental process, the competitiveness of campaigns and public confidence in local officials are all diminishing. (Ord. C-7283 § 1, 1994; Prop. M, 6-7-94, eff. 6-24-94)

2.01.130 Purpose.

It is the purpose of this Chapter 2.01:

A. To insure that individuals and interest groups in Long Beach have a fair and equal opportunity to participate in municipal elective and governmental processes.

B. To reduce the influence of large contributors with a specific financial stake in matters before the City Council, thus countering the perception that decisions are influenced more by the size of contributions than the best interests of the people of the City.

C. To assist serious candidates in raising enough money to communicate their views and positions adequately to the public without excessive expenditures or contributions, thereby promoting public discussion of the important issues involved in political campaigns.

D. To limit overall expenditures in campaigns, thereby reducing the pressure on candidates to raise large campaign war chests for defensive purposes, beyond the amount necessary to communicate reasonably with voters.

E. To provide a neutral source of campaign financing in the form of limited public matching funds.

F. To increase the value to candidates of smaller contributions.

G. To eliminate fundraising except during an election cycle.

H. To reduce the excessive fundraising advantage of incumbents and thus encourage competition for elective office.

I. To allow candidates and officeholders to spend a lesser proportion of their time on fundraising and a greater proportion of their time dealing with issues of importance to their constituents.

J. To improve the disclosure of contribution sources in reasonable and effective ways.

K. To help restore public trust in local governmental and electoral institutions. (Ord. C-7283 § 1, 1994; Prop. M, 6-7-94, eff. 6-24-1994)

DIVISION II. DEFINITIONS

2.01.210 Definitions.

For purpose of this Chapter 2.01, the following words and phrases shall have the meanings set forth as follows unless the contrary is stated or clearly appears from the content:

A. "Qualified campaign expenditure" means any of the following:

1. Any expenditure made by a candidate for City office, or by a committee controlled by such a candidate, for the purpose of influencing or attempting to influence the actions of the voters for or against the election of any City candidate.

2. A nonmonetary contribution provided at the request of or with the approval of the candidate, officeholder or committee controlled by the candidate or officeholder.

3. That portion of the total cost of a slate mailing or mailing of other campaign literature produced or authorized by more than one (1) candidate which is the greater of the cost actually paid or incurred by the committee or controlled committee of the candidate or the proportionate share of the total cost attributable to each such candidate. The number of candidates sharing costs and the emphasis on or space devoted to each such candidate shall be considered in determining the cost attributable to each such candidate.

4. "Qualified campaign expenditure" does not include any payment if it is clear from the surrounding circumstances that it was not made in any part for political purposes.

B. "Election cycle" means that period commencing with January 1 of an odd-numbered year and ending December 31 of the following year. For a special election, the election cycle commences with the declaration of a vacancy in an elective office and ends six (6) months after the special election date.

C. "Campaign reform account" means the account of the general fund created by Section 2.01.910.

D. "Person" means any individual, organization or political action committee whose contributions or expenditure activities are financed, maintained or controlled by any corporation, labor organization, association, political party or any other person or committee, including any parent, subsidiary, branch, division, department or local unit of the corporation, labor organization, association, political party or any other person, or by any group of such persons.

Two (2) or more entities shall be deemed one (1) person when any of the following circumstances apply:

The entities share the majority of members of their Boards of Directors; or

The entities share two (2) or more officers; or

The entities are owned or controlled by the same majority shareholder or shareholders; or

The entities are in a parent-subsidiary relationship.

An individual and any general partnership in which the individual is a general partner, or an individual and any corporation in which the individual owns a controlling interest, shall be deemed one (1) person. (ORD-25-0003 § 3, 2025; ORD-19-0001 § 4, 2019; ORD-14-0020 § 1, 2014; Ord. C-7661 § 1, 1999; Ord. C-7283 § 1, 1994; Prop. M, 6-7-94, eff. 6-24-1994)

2.01.220 Interpretation.

Unless a term is specifically defined in this Chapter 2.01 or the contrary is stated or clearly appears from the context, the definitions set forth in California Government Code, Section 82000 et seq., shall govern the interpretation of this Chapter 2.01. (Ord. C-7283 § 1, 1994; Prop. M, 6-7-94, eff. 6-24-1994)

DIVISION III. CONTRIBUTION LIMITATIONS

2.01.310 Limitations on contributions from persons.

A. For primary and general elections, no person shall make to any candidate for office or the

controlled committee of such a candidate, and no such candidate or the candidate's controlled committee shall accept from any such person, a contribution or contributions totaling more than two hundred fifty dollars ($250.00) for the primary election and two hundred fifty dollars ($250.00)

for the runoff election if the candidate is on the runoff ballot or is a write-in candidate for the office of City Councilmember, three hundred fifty dollars ($350.00) for the primary election and three hundred fifty dollars ($350.00) for the runoff election if the candidate is on the runoff ballot or is a write-in candidate for City Attorney, City Auditor or City Prosecutor or five hundred dollars ($500.00) for the primary election and five hundred dollars ($500.00) for the runoff election if the candidate is on the runoff ballot or is a write-in candidate for Mayor.

B. For primary and general elections, no person shall make to any committee which supports or opposes any candidate and no such committee shall accept from each such person a contribution or contributions totaling more than two hundred fifty dollars ($250.00) for the primary election and two hundred fifty dollars ($250.00) for the runoff election for City Councilmembers, three hundred fifty dollars ($350.00) for the primary election and three hundred fifty dollars ($350.00) for the runoff election for City Attorney, City Auditor or City Prosecutor, or five hundred dollars ($500.00) for the primary election and five hundred dollars ($500.00) for the runoff election for Mayor.

C. For special elections, no person shall make to any candidate for office or the controlled committee of such a candidate, and no such candidate or the candidate's controlled committee shall accept from any such person, a contribution or contributions totaling more than one thousand dollars ($1,000.00); and no political committee (as defined in California Government Code Section 82013) shall make to any candidate for office or the controlled committee of such a candidate, and no such candidate or the candidate's controlled committee shall accept from any such political committee, a contribution or contributions totaling more than two thousand five hundred dollars ($2,500.00). (Ord. C-7720 § 1, 2001: Ord. C-7661 § 2, 1999: Ord. C-7283 § 1, 1994; Prop. M, 6-7-94, eff. 6-24-1994)

2.01.320 Prohibition on nonelection cycle contributions.

A. Except as otherwise provided herein, no candidate or officeholder or the controlled committee of such a person shall accept any contribution except during an election cycle in which the candidate or officeholder intends to run for or be a write-in candidate for the office for which the contribution is made.

B. Candidates, officeholders, and any controlled committee of such persons may accept contributions to pay net debts outstanding after an election, subject to the contribution limits in this Chapter. Any contributions received after an election shall only be used to reduce the total amount of net debts outstanding. A candidate, officeholder, or controlled committee shall use available funds to pay net debts outstanding as soon as practicable.

C. It is unlawful for any candidate, officeholder, or controlled committee of such persons to solicit or accept a contribution that exceeds the total amount net debts outstanding on the date the contribution is received. A contribution that exceeds a candidate, officeholder, or controlled committee's net debts outstanding from an election shall be treated in the same manner as a contribution in excess of the contribution limits in this Chapter.

D. As used in this Section:

1. "Election" means the election for which the candidate or officeholder ran for or was a write-in candidate, incurred bills and debts, and is raising contributions to pay net debts outstanding.

2. "Net debts outstanding" has the same meaning as that set forth in Title 2, Section 18531.61 of the California Code of Regulations, as it reads now or as it may be amended. (ORD-23-0049 § 3(Exh. A), 2023; Ord. C-7283 § 2, 1994: Prop. M, 6-7-94, eff. 6-24-1994)

2.01.330 Reserved.

Editor's note—ORD-14-0020 § 12, adopted Nov. 18, 2014, repealed § 2.01.330 entitled "Return of contributions", which derived from: Ord. C-7283 § 1, 1994; Prop. M, 6-7-94, eff. June 24, 1994.

2.01.340 Loans.

A. A loan shall be considered a contribution from the maker and the guarantor of the loan and shall be subject to the contribution limitations of this Chapter.

B. Every loan to a candidate's controlled committee shall be by written agreement.

C. The proceeds of a loan made to a candidate by a commercial lending institution in the regular course of business and on the same terms available to members of the public and which is secured or guaranteed shall not be subject to the contribution limitations of this Chapter.

D. Extensions of credit, other than loans pursuant to Subsection 2.01.340.C, for a period of more than thirty (30) days are subject to the contribution limitations of this Chapter.

E. Notwithstanding any other provision of this Section 2.01.340: (1) a candidate for City Council shall not loan or otherwise transfer to his or her campaign, funds, or other thing of value, in excess of ten thousand dollars ($10,000.00) in a primary election and ten thousand dollars ($10,000.00) in a runoff election; (2) a candidate for City Attorney, City Auditor or City Prosecutor shall not loan or otherwise transfer to his or her campaign, funds, or other thing of value, in excess of fifteen thousand dollars ($15,000.00) in a primary election and fifteen thousand dollars ($15,000.00) in a runoff election; and, (3) a candidate for Mayor shall not loan or otherwise transfer to his or her campaign, funds, or other thing of value, in excess of twenty-five thousand dollars ($25,000.00) in a primary election and twenty-five thousand dollars ($25,000.00) in a runoff election. Nothing herein shall be construed to restrict a candidate from contributing his or her own funds or assets to his or her campaign. (ORD-14-0020, § 2, 2014; Ord. C-7283 § 1, 1994; Prop. M, 6-7-94, eff. 6-24-1994)

2.01.350 Reserved.

Editor's note—ORD-14-0020 § 12, adopted Nov. 18, 2014, repealed § 2.01.350 entitled "Family contributions", which derived from: Ord. C-7283 § 1, 1994; Prop. M, 6-7-94, eff. June 24, 1994.

2.01.360 Treatment of money received as contributions, income or gifts.

Any funds received by any elected official or candidate running in the jurisdiction or any committee controlled by such an official or candidate shall be considered either a campaign contribution, income or a gift. All campaign contributions received by such persons shall be subject to the provisions of this act unless such campaign contributions are used exclusively for elections held outside the jurisdiction. All income and gifts shall be subject to the disqualification provisions of the Political Reform Act, Government Code, Section 87100 et seq. (Ord. C-7283 § 1, 1994; Prop. M, 6-7-94, eff. 6-24-1994)

2.01.370 One campaign committee and one checking account per candidate.

Except as may be otherwise provided by State law, a candidate shall have no more than one (1) campaign committee and one (1) checking account per election out of which all expenditures shall be made. This Section shall not prohibit the establishment of savings accounts, but no qualified campaign expenditures shall be made out of these savings accounts. This Section shall not prohibit the transfer of funds or "carry over" in excess of net debt from the primary election for use in the general election for the same candidate. (ORD-14-0020 § 3, 2014; Ord. C-7283 § 1, 1994; Prop. M, 6-7-94, eff. 6-24-1994)

2.01.380 Contributions for officeholder expense fund.

A. Notwithstanding any other provisions of this Chapter, upon taking office each elected City officeholder may establish an officeholder expense fund and may solicit and accept contributions for said officeholder expense fund not to exceed a total amount of thirty thousand dollars ($30,000.00) per calendar year for City Councilmembers and seventy-five thousand dollars ($75,000.00) per calendar year for the City Attorney, City Auditor, City Prosecutor and Mayor. No person shall make and no elected City officeholder or officeholder expense fund shall solicit or accept from any person, a contribution or contributions to the officeholder expense fund totaling more than seven hundred fifty dollars ($750.00) per calendar year for City Councilmembers and one thousand dollars ($1,000.00) per calendar year for City Attorney, City Auditor, City Prosecutor

and Mayor. The money in such fund shall be expended and used only for the purpose of officeholder expenses associated with holding office, in accordance with and authorized by the applicable provisions of Sections 89510 through 89522 of the California Government Code, as amended. None of such officeholder expense funds may be used or expended for any expenditures that would violate the provisions of Government Code Sections 89506 or 89512 through 89519.

B. Each such officeholder expense fund shall be considered a subaccount of the officeholder's controlled committee. All solicitations made and contributions received for an officeholder expense fund shall be clearly designated as being made or received for such uses and purposes.

C. The officeholder or his or her treasurer shall retain all receipts, invoices, written agreements and other documents relating to expenditures from such officeholder expense fund. (ORD-17-0007 § 1, 2017; ORD-15-0004 § 1, 2015; ORD-10-0028 § 1, 2010; ORD-07-0037 § 1, 2007: Ord. C-7314 § 1, 1995)

2.01.390 Reserved.

Editor's note—ORD-17-0007 § 2, adopted Apr. 18, 2017, repealed § 2.01.390 entitled "Transfer of funds," which derived from: ORD-14-0020 § 4, 2014; and Ord. C-7661 § 8, 1999.

2.01.395 IntraCandidate transfers

A candidate for local elective office in Long Beach shall not transfer campaign funds from a controlled non-City campaign account into a local Long Beach campaign account except as specified below:

Contributions transferred shall be attributed to specific contributors using a "last in, first out" or "first in, last out" accounting method, and their attributed contributions when aggregated with all other contributions from the same contributor may not exceed the limits set forth in Section 2.01.310. (ORD-14-0020 § 11, 2014)

DIVISION IV. EXPENDITURE CEILINGS AND MATCHING FUNDS

2.01.410 Expenditure ceilings.

No candidate for office who files a statement of acceptance of expenditure ceilings nor any controlled committee of such a candidate shall make qualified campaign expenditures above the following amounts and subject to the following restrictions:

A. 1. Except as otherwise provided herein, a candidate for City Council may not spend more than forty thousand dollars ($40,000.00) in the primary or more than twenty thousand dollars ($20,000.00) in the runoff election to be eligible for matching funds.

2. In order to qualify for matching funds, a City Council candidate: (a) must raise at least five thousand dollars ($5,000.00) in contributions of two hundred fifty dollars ($250.00) or less within the election cycle, of which only up to the first one hundred dollars ($100.00) from each contributor may be counted for purposes of achieving the qualifying total of five thousand dollars ($5,000.00); and (b) must be opposed by a candidate who has qualified for matching funds or who has raised ten thousand dollars ($10,000.00).

3. The maximum available matching funds shall be an amount not to exceed thirty-three percent (33%) of the maximum amount permitted for expenditure in the primary and fifty percent (50%) of the maximum amount permitted for expenditure in the runoff election.

4. During each election cycle, the City Clerk shall, immediately following the final day for filing nominating petitions for the office of City Councilmember, ascertain: (a) the number of registered voters in each councilmanic district as of the final day for filing; and (b) the mean number of voters in all such districts. Thereafter, and for the ensuing election cycle, in each district where the number of registered voters exceeds the mean, the expenditure limitations of forty thousand dollars ($40,000.00) and twenty thousand dollars ($20,000.00) shall be increased two dollars ($2.00) and one dollar ($1.00), respectively, for each registered voter in excess of the mean.

B. A candidate for City Attorney, City Auditor or City Prosecutor may not spend more than one hundred thousand dollars ($100,000.00) in

the primary or more than fifty thousand dollars ($50,000.00) in the runoff election. In order to qualify for matching funds, such a candidate:

1. Must raise at least ten thousand dollars ($10,000.00) in contributions of three hundred fifty dollars ($350.00) or less within the election cycle, of which such contributions, only up to the first one hundred fifty dollars ($150.00) from each contributor, may be counted for purposes of achieving the qualifying total of ten thousand dollars ($10,000.00); and

2. Must be opposed by a candidate who has qualified for matching funds or who has raised twenty thousand dollars ($20,000.00). The maximum available matching funds shall be an amount not to exceed thirty-three percent (33%) of the maximum amount permitted for expenditure in the primary and fifty percent (50%) of the maximum amount permitted for expenditure in the runoff election.

C. A candidate for Mayor may not spend more than two hundred thousand dollars ($200,000.00) in the primary or more than one hundred thousand dollars ($100,000.00) in the runoff election to be eligible for matching funds. In order to qualify for matching funds, such a candidate:

1. Must raise at least twenty thousand dollars ($20,000.00) in contributions of five hundred dollars ($500.00) or less within the election cycle, of which such contributions, only up to the first two hundred dollars ($200.00) from each contributor may be counted for the purpose of achieving the qualifying total of twenty thousand dollars ($20,000.00); and

2. Must be opposed by a candidate who has qualified for matching funds or who has raised forty thousand dollars ($40,000.00). The maximum available matching funds shall be an amount not to exceed thirty-three percent (33%) of the maximum amount permitted for expenditure in the primary and fifty percent (50%) of the maximum amount permitted for expenditure in the runoff election.

D. It is the intent of Subsections 2.01.410.A, 2.01.410.B and 2.01.410.C of this Section that candidates who qualify for matching funds in primary elections shall receive one dollar ($1.00) in matching funds for every two dollars ($2.00) raised through contributions and that candidates who qualify for matching funds in runoff elections shall receive one dollar ($1.00) in matching funds for every one dollar ($1.00) raised through contributions.

E. Any candidate who has filed a statement of acceptance of the expenditure ceilings and desires to apply for matching funds may submit such application to the City Clerk on any normal business day between January 1 of an odd-numbered year through December 31 of the following year.

F. Any candidate applying for matching funds must be current in his or her campaign statement filings with the City Clerk.

G. A candidate wishing to apply for matching funds may submit such application with the City Clerk no more frequently than every ten (10) business days.

H. The expenditure limits set forth in this Section shall not apply to candidates for office in any special election, nor shall such candidates be eligible for matching funds. (ORD-23-0049 § 3(Exh. A), 2023; Ord. C-7661 § 3, 1999: Ord. C-7283 § 1, 1994; Prop. M, 6-7-94, eff. 6-24-94)

2.01.420 Time periods for expenditures.

For purposes of the expenditure ceilings, qualified campaign expenditures made at any time up to the date of the primary election shall be considered an expenditure for that election, and qualified campaign expenditures made after the date of the primary election shall be considered expenditures for the runoff (general) election. However, in the event that payments are made but the goods or services are not used during the period purchased, the payments shall be considered qualified campaign expenditures for the time period in which they are used. Payments for goods and services used in both periods shall be prorated. (ORD-14-0020 § 5, 2014; Ord. C-7283 § 1, 1994; Prop. M, 6-7-94, eff. 6-24-94)

DIVISION V. ACCEPTANCE OF EXPENDITURE CEILINGS

2.01.510 Candidate acceptance or rejection of expenditure ceilings.

A. Each candidate for office, at the time of filing his or her nomination papers, shall file a statement accepting or rejecting the expenditure ceilings in Division IV.

B. If a candidate declines to accept the expenditure ceilings in Section 2.01.410, the candidate shall be nonetheless subject to the contribution limitations in Section 2.01.310.

C. A candidate who agrees to accept the expenditure ceilings in Section 2.01.410 may not change that decision, except that if an opposing candidate files a statement of rejection, then the candidate may rescind his or her acceptance within ten (10) calendar days of the last date for filing nomination papers provided that the candidate has not accepted any contributions in amounts greater than the limitations set forth in Section 2.01.310.

D. If a primary candidate advances to the general municipal election, such candidate shall file a statement accepting or rejecting the expenditure ceilings with the City Clerk no later than five (5) working days after the primary nominating election results are officially declared by the City Council. (Ord. C-7661 § 4, 1999; Ord. C-7283 § 1, 1994; Prop. M, 6-7-94, eff. 6-24-94)

DIVISION VI. INDEPENDENT EXPENDITURES

2.01.610 Reserved.

Editor's note—ORD-14-0020 § 12, adopted Nov. 18, 2014, repealed § 2.01.610 entitled "Contribution limitations", which derived from: Ord. C-7283 § 1, 1994; Prop. M, 6-7-94, eff. June 24, 1994.

2.01.620 Reserved.

Editor's note—ORD-14-0020 § 12, adopted Nov. 18, 2014, repealed § 2.01.620 entitled "Reproduction of materials", which derived from: Ord. C-7283 § 1, 1994; and Prop. M, 6-7-94, eff. June 24, 1994.

2.01.630 Notice of independent expenditures.

Any person who makes independent expenditures of more than two hundred fifty dollars ($250.00) in support of or in opposition to any candidate shall notify the City Clerk and all candidates running for the same seat by any means approved by the City Clerk each time such an expenditure is made. (ORD-23-0049 § 3(Exh. A), 2023; Ord. C-7661 § 5, 1999; Ord. C-7283 § 1, 1994; Prop. M, 6-7-94, eff. 6-24-94)

DIVISION VII. ADDITIONAL DISCLOSURE REQUIREMENTS

2.01.710 Reserved.

2.01.720 Additional pre-election campaign statement.

In addition to the campaign statement required to be filed pursuant to the Political Reform Act, commencing with Government Code Section 81000, candidates, their controlled committees and independent committees primarily formed to support or oppose candidates in Long Beach subject to this Act shall file a pre-election statement on the Friday before each election. This statement shall have a closing date of the Wednesday immediately preceding the election date. (Ord. C-7283 § 1, 1994; Prop. M, 6-7-94, eff. 6-24-94)

2.01.730 Reserved.

Editor's note—ORD-14-0020 § 12, adopted Nov. 18, 2014, repealed § 2.01.730 entitled "Disclosure of occupation and employer", which derived from: Ord. C-7283 § 1, 1994; and Prop. M, 6-7-94, eff. June 24, 1994.

DIVISION VIII. AGENCY RESPONSIBILITY

2.01.810 Duties of the City Clerk.

The City Clerk shall also:

A. Adjust the expenditure ceilings, contribution limitations and public financing provisions in January of odd numbered years to reflect any increase or decrease in the Consumer Price Index as provided in Section 2.01.1210. Such adjustments shall be rounded off to the nearest one

hundred dollars ($100.00) for contributions and the nearest one thousand dollars ($1,000.00) for expenditures and matching funds.

B. Prescribe all necessary forms for filing statements and information.

C. Prepare and release studies on the impact of this Act. These studies may include recommendations which further the purpose of this Chapter 2.01. (ORD-14-0020 § 6, 2014; Ord. C-7283 § 1, 1994; Prop. M, 6-7-94, eff. 6-24-94)

DIVISION IX. CAMPAIGN ACCOUNT DESIGNATION

2.01.910 Campaign account created.

There is hereby created a campaign account in the general fund of the City of Long Beach to which the City Council shall, from time to time, appropriate funds for expenditures pursuant to the purposes and provisions of this Chapter 2.01. (Ord. C-7283 § 1, 1994; Prop. M, 6-7-94, eff. 6-24-94)

DIVISION X. DISPOSAL OF SURPLUS FUNDS

2.01.1010 Definitions.

The words set forth in this Section shall have the following meaning when used in this Division:

A. "Election" means the election for which the candidate or officeholder ran for or was a write-in candidate, incurred bills and debts, and is raising contributions to pay net debts outstanding.

B. "Election cycle" means that period commencing with January 1 of an odd-numbered year and ending December 31 of the following year. For a special election, the election cycle commences with the declaration of a vacancy in an elective office and ends six (6) months after the special election date.

C. "Surplus funds" means any funds remaining to a candidate, or any controlled committee of such candidate, sixty (60) days following the end of the election cycle, during which such funds have been raised.

D. "Net debts outstanding" has the same meaning as that set forth in Title 2, Section 18531.61 of the California Code of Regulations, as it reads now and as it may be amended. (ORD-23-0049 § 4(Exh. A), 2023)

2.01.1020 Retention of twenty-five thousand dollars by officeholders.

Any person holding office as a result of a successful campaign resulting in surplus funds may retain and transfer up to twenty-five thousand dollars ($25,000.00) of such surplus funds into his or her officeholder expense fund for expenditures associated with holding such office in accordance with the provisions of Sections 89512 and 89513 of the California Government Code. Any such transfer in accordance with this Section shall be counted toward the calendar year fund limit established by Subsection 2.01.380.A of this Code. (ORD-15-0004 § 2, 2015; ORD-10-0028 § 2, 2010; Ord. C-7283 § 1, 1994; Prop. M, 6-7-94, eff. 6-24-94)

2.01.1030 Disposal of surplus funds.

A. Surplus funds shall be disposed of only as provided in this Division. Funds retained by a candidate and specifically earmarked for payment of campaign expenses lawfully incurred during the election cycle need not be included in surplus funds provided that such expense payment is made no later than sixty (60) days after the end of the election cycle.

B. A committee with net debts outstanding at the end of the election cycle may remain open for the purpose of paying such debts. A committee that remains open for the purpose of paying net debts outstanding must file semi-annual disclosure statements and pay an annual committee fee to the California Secretary of State until the committee is terminated.

C. Except as provided in Section 2.01.1020, surplus funds shall be disposed of in the following order and priority:

1. To pay outstanding campaign debts.

2. Surplus funds shall first be used to reimburse the campaign reform account of the City of Long Beach up to the full amount of matching funds, if any, received by the candidate.

3. Any funds remaining after such reimbursement or such payment of debts, if any, may be expended exclusively as provided in Section 89515 of the California Government Code and must be expended no later than sixty (60) days after the end of the Election Cycle.

4. Any funds not expended pursuant to this Subsection by December 31 next following the end of the Election Cycle (or, in the case of a special election, one hundred twenty (120) days after the end of the Election Cycle) shall be paid immediately into the campaign reform account of the City of Long Beach. (ORD-23-0049 § 2(Exh. A), 2023; ORD-14-0020 § 8, 2014; Ord. C-7661 § 7, 1999; Ord. C-7283 § 1, 1994; Prop. M, 6-7-94, eff. 6-24-94)

DIVISION XI. ENFORCEMENT

2.01.1110 Criminal actions.

A. Any person violating any of the provisions or failing to comply with any of the mandatory requirements of this Act shall be guilty of a misdemeanor. Any person convicted of such a misdemeanor, unless provision is otherwise made herein, shall be punishable by a fine of not more than five hundred dollars ($500.00), or by imprisonment in the City or County jail for a period not exceeding six (6) months, or by both such fine and imprisonment.

B. As an alternative to the penalty provided in Subsection 2.01.1110.A, violation of or failure to comply with any provision of or condition lawfully imposed under this Act may be deemed to constitute an infraction as provided in Section 17 of the California Penal Code, and penalties for such infractions shall be as set forth in Section 19.8 of the California Penal Code.

C. Any person who causes any other person to violate any provision of this Act, or who aids and abets any other person in the violation of any provision of this Act, shall be equally subject to the provisions of this Section. (ORD-23-0049 § 3(Exh. A), 2023; Ord. C-7283 § 1, 1994; Prop. M, 6-7-94, eff. 6-24-94)

2.01.1120 Civil action.

A. Any person who violates any provision of this act shall be liable in a civil action brought by the City Attorney or, in the case of a conflict of interest on the part of the City Attorney, an attorney retained by the City on the City Attorney's recommendation, or by or on behalf of a person residing within the jurisdiction, for an amount not more than three (3) times the amount of the unlawful contribution or expenditure.

B. If two (2) or more persons are responsible for any violation, they shall be jointly and severally liable.

C. Any person, before filing a civil action pursuant to this Section, shall first file with the City Attorney a written request for the City Attorney to commence the action. The request shall contain a statement of the grounds for believing the cause of action exists. The City Attorney shall respond within forty (40) days after receipt of the request indicating whether he or she intends to file a civil action. (In the case of a conflict of interest on the part of the City Attorney, independent counsel shall be retained to formulate this response.) If the City Attorney or, when applicable, independent counsel indicates in the affirmative and files a suit within forty (40) days thereafter, no other action may be brought unless the action brought by the City Attorney or independent counsel is dismissed without prejudice.

D. In determining the amount of liability, the court may take into account the seriousness of the violation and the degree of culpability of the defendant. If a judgment is entered against the defendant or defendants in an action, the entire amount shall be paid into the campaign reform account of the general fund of the City.

E. No civil action alleging a violation of any provision of this act shall be filed more than four (4) years after the date the violation occurred. (Ord. C-7283 § 1, 1994; Prop. M, 6-7-1994, eff. 6-24-1994)

2.01.1130 Injunctive relief.

Any person residing in the jurisdiction, including the City Attorney, may sue for injunctive relief to enjoin violations or to compel compliance with the provisions of this act. (Ord. C-7283 § 1, 1994; Prop. M, 6-7-1994, eff. 6-24-1994)

2.01.1140 Cost of litigation.

The court may award to a plaintiff, or a defendant other than an agency, who prevails in any action authorized by this act, his or her costs of litigation, including reasonable attorney fees. (Ord. C-7283 § 1, 1994; Prop. M, 6-7-1994, eff. 6-24-1994)

2.01.1150 Disqualification.

In addition to any other penalties prescribed by law, if an official receives a contribution violative of Sections 2.01.310 or 2.01.320, the official shall not be permitted to make, participate in making or in any way attempt to use his or her official position to influence any governmental decision in which the contributor has a financial interest. The provisions of Government Code Section 87100 et seq., and the regulations of the Fair Political Practices Commission shall apply to interpretations of this Section. (Ord. C-7283 § 1, 1994; Prop. M, 6-7-1994, eff. 6-24-1994)

DIVISION XII. MISCELLANEOUS PROVISIONS

2.01.1210 Inflation/deflation.

A. Any amount subject to a limitation or ceiling, or established pursuant to formula set forth in Section 2.01.310 or Subsections 2.01.410.A.1 and 2.01.410.A.4 of this Chapter shall be automatically adjusted on January 1, 2015, and on January 1 of each odd numbered year thereafter, upward or downward, equivalent to the most recent change in the annual average of the Consumer Price Index as published by the United States Department of Labor for the Los Angeles-Long Beach-Anaheim Metropolitan area.

B. For purposes of calculating the annual inflator/deflator factor under this Section, the base year shall be that year ending with the quarter ending June 30, 1995. Rates shall be adjusted on January 1, 2015, and every two (2) years thereafter, based on the annually calculated change from the base year. The adjustment shall be rounded to the nearest one hundred dollars ($100.00).

C. The adjusted amount as determined by this Section on January 1, of each odd numbered year shall remain the same amount for the entire Election Cycle as defined in Section 2.01.210 beginning January 1 of the same odd numbered year. (ORD-14-0020 § 9, 2014; Ord. C-7283 § 1, 1994; Prop. M, 6-7-1994, eff. 6-24-1994)

2.01.1220 Applicability of other laws.

Nothing in this act shall exempt any person from applicable provisions of any other law. (Ord. C-7283 § 1, 1994; Prop. M, 6-7-1994, eff. 6-24-1994)

2.01.1230 Severability.

If any section, subsection, subdivision, sentence, sum, percentage, clause or phrase of this act is for any reason held to be unconstitutional, invalid or void, such decision shall not affect the validity of the remaining portions of this act. The City Council hereby declares that it would have passed this act, and every section, subsection, subdivision, sentence, sum, percentage, clause and phrase thereof, irrespective of the fact that any one or more sections, subsections, subdivisions, sentences, sums, percentages, clauses or phrases thereof is declared unconstitutional, invalid or void. (Ord. C-7283 § 1, 1994; Prop. M, 6-7-1994, eff. 6-24-1994)

2.01.1240 Amendments.

A. This Chapter may be amended from time to time by ordinance adopted by a two-thirds (2/3) vote of the members of the City Council upon a finding by the Council that such amendment is consistent with and in furtherance of the purposes of this Chapter.

B. This Chapter may be amended or repealed at any time by an ordinance approved by the electors of the City of Long Beach. (Ord. C-7283 § 1, 1994; Prop. M, 6-7-1994, eff. 6-24-1994)

CHAPTER 2.02 RESERVED*

CHAPTER 2.03 CITY COUNCIL†

ARTICLE I. RULES OF THE COUNCIL

2.03.010 Adopted.

The rules set forth in this Chapter are adopted and approved and shall constitute the rules of the

---

***Editor's note**—ORD-23-0049 § 5, adopted Dec. 5, 2023, repealed Ch. 2.02, §§ 2.02.010 and 2.02.020 entitled "Campaign Disclosure Statements," which derived from: ORD-20-0008 § 1, 2020; ORD-14-0020 § 10, 2014; ORD-10-0014 § 2, 2010; and Ord. C-7880 § 1, 2003.

†**Cross reference**—Provisions on the City Council generally, see the City Charter, for provisions on filling vacancies in the City Council, see the City Charter.

State law reference—Provisions on municipal Council meetings, Gov. Code § 36805 et seq.

Council governing the conduct and performance of the duties of the Council from and after the effective date hereof. (Prior code § 2212 (part))

2.03.020 Meetings.

A. All meetings of the Council shall be open and public, and all persons shall be permitted to attend any meeting of the Council except as otherwise provided in this Section.

B. Regular meetings of the City Council shall be held in the Council Chambers of City Hall at five o'clock (5:00) p.m. on Tuesday of each week, except the last Tuesday of each month, on which there will be no regular meeting of the City Council.

If any regular meeting day falls on a holiday, such regular meeting shall be held on the next business day thereafter.

C. Special meetings of the Council may be ordered at any time by the Mayor, or by five (5) members of the Council, by delivering personally or by mail written notice to each member of the Council and to each local newspaper of general circulation, radio or television station requesting notice in writing. Such notice must be delivered personally or by mail at least twenty-four (24) hours before the time of such meeting is specified in the notice. The order shall specify the time and place of the special meeting and the business to be transacted. No other business shall be considered at such meeting by the Council. Such order shall be filed with the City Clerk and such notice shall be given by the City Clerk in the manner aforesaid. The City Clerk shall execute and file with the records of each such special meeting an affidavit setting forth the time, place and manner of giving each such notice. A copy of the order calling such special meeting and the aforesaid affidavit of the City Clerk shall be spread upon the minutes of such special meeting.

D. The Council may adjourn any regular, adjourned or special meeting to a time and place specified in the order of adjournment. Whenever a place of meeting is not specified in an order of adjournment the same shall be held in the Council Chambers in the City Hall of the City. Whenever an order of adjournment of a regular, adjourned or special meeting fails to state the hour at which the adjourned meeting is to be held it shall be held at nine o'clock (9:00) a.m., on the day specified in the order of adjournment. All matters may be considered and passed upon at such adjourned meetings as could have been considered and passed upon at the meetings from which such adjournments were taken and shall be deemed to be a continuation of the meeting from which the adjournment was taken.

E. If by reason of fire, earthquake or other emergency, it is unsafe to hold any meeting of the Council in the place designated, any such meeting may be held for the duration of such emergency at such place as shall be designated by the Mayor. In the event the place designated for a meeting of the Council is determined by a majority of the members of the Council to be not sufficiently large to conveniently accommodate the persons in attendance, the Council may adjourn, such meeting to be held at a place to be designated in such order of adjournment in the City other than the Council Chambers in the City Hall, or other than the place otherwise previously designated as provided in this Section at the time and place specified in the order of adjournment.

F. Unless otherwise provided by the City Charter, the Council may hold executive sessions to consider the employment or dismissal of a public officer or employee subject to appointment or dismissal by the Council under the provisions of the City Charter or to hear complaints or charges brought against such officer or employee, unless such officer or employee requests a public hearing. The Council may exclude from any of its meetings during the examination of a witness any or all other witnesses in the matter being investigated by it.

G. The Mayor, or in his absence the Vice Mayor, shall take the chair at the hour appointed for the meeting of the Council and shall immediately call the Council to order. In the absence of both the Mayor and Vice Mayor, the City Clerk, or an assistant City Clerk, shall call the Council to order, whereupon a Chairperson shall be elected

to preside from among the members of the Council present. Said election shall proceed in the order of descending seniority of the members present in terms of service on the Council. (Ord. C-7852 § 1, 2003; Ord. C-7594 § 1, 1999; Ord. C-7559 § 1, 1998; Ord. C-7313 § 1, 1995; Ord. C-7061 § 1, 1992; Ord. C-6941 § 1, 1991; Ord. C-6911 § 1, 1991; Ord. C-6367 § 1, 1987; Ord. C-6324 § 1, 1986; Ord. C-6245 § 1, 1986; Ord. C-6122 § 1, 1984; Ord. C-5997 § 2, 1983; Ord. C-5961 § 1, 1983; Ord. C-5700 § 2, 1981; prior code § 2212 (Rule 1))

2.03.030 Presiding officer.

A. The Mayor, or other presiding officer, shall preserve order and decorum; may object to points of order in preference to other members; and shall decide questions of order, subject to an appeal to the Council by any member, on which appeal no member shall speak more than once, unless by leave of two-thirds (2/3) of the members present.

The Mayor, or other presiding officer, shall have general direction of the Council Chamber. He shall have a right to name any member to perform the duties of the Chair, but such substitution shall not extend beyond an adjournment. He shall have the power to assign seats to the members of the City Council and may assign places to properly accredited newspaper representatives.

B. The Mayor, or other presiding officer, shall, before ordering a roll call on any question, state the motion as it is to appear in the minutes. (Prior code § 2212 (Rule 3))

2.03.040 Order of business.

A. Except as set forth in this Section, the order of business of the City Council at all regular meetings shall be as follows, unless otherwise waived by consent of the Council:

1. Call to order by Mayor;
2. Roll call of the City Council by City Clerk;
3. Moment of silence;
4. Pledge of Allegiance;
5. Consent calendar:

a. Approval of the minutes of previous meeting(s).

b. The consent calendar shall be heard immediately after the pledge of allegiance, and prior to 6:30 PM.

c. Any item removed from the consent calendar for separate action shall be heard as the first item on the regular agenda.

6. Ceremonials and Presentations. Ceremonials and presentations shall:

a. Be limited to no more than three (3) ceremonials and/or presentations per City Council meeting; and

b. Not exceed five (5) minutes per ceremonial or presentation.

7. Hearings;

8. Public Comment. The opportunity for members of the public to address the City Council on matters of public business which are not listed on the agenda but are within the subject matter jurisdiction of the City Council, which shall be conducted in accordance with the following rules:

a. Each person desiring to address the City Council pursuant to this part of the order of business may, but is not required to, submit their name and the subject matter in writing to the City Clerk prior to the commencement of the Council meeting;

b. All addresses to the City Council under this part shall be limited to three (3) minutes;

c. The total number of speakers under this part shall be limited to the first ten (10) persons who have submitted their request to address the City Council on a matter not listed on the agenda in writing to the City Clerk;

d. The total amount of time to be devoted to addresses under this part shall not exceed thirty (30) minutes unless said limit on the total amount of time is waived by consent of the City Council.

9. Unfinished business;
10. Regular agenda;
11. Ordinance(s);
12. New business:

a. A supplemental agenda item submitted by a Councilmember shall require a separate "State-

ment of Urgency" explaining why the item is urgent and is required to be added after agenda is posted. If the City Council deems that a supplemental agenda item added onto the posted agenda is not urgent, the item shall be laid over to a future City Council meeting.

b. Announcements.

13. Public Comment:

a. The opportunity for those members of the public to address the City Council on nonagenda items who have not already addressed the City Council on nonagenda items at the same meeting.

14. Adjournment. In the event the City Council desires to adjourn to a certain hour on another day, a motion shall be made either prior to or as part of the regular motion to adjourn indicating the hour and date to which the meeting is adjourned.

B. Without objection by the City Council, the Mayor, or other presiding officer, may use their discretion to call for any agenda item out of order for consideration and disposition, as needed, to ensure an efficient flow of the meeting.

C. Public Comment for Agenda Items.

1. Each person desiring to address the City Council on an agenda item may, but is not required to, submit their name in writing to the City Clerk prior to the time that the Mayor, or other presiding officer, calls for the agenda item to be taken up for consideration. At that time, the speakers list for said agenda item will be closed and speakers will be called to speak at a time deemed appropriate by the Mayor, or presiding officer.

2. Where less than ten (10) members of the public submit their request to the Clerk to speak on a particular agenda item, each member of the public shall have three (3) minutes to address the City Council. Any member of the public in need of a translator pursuant to the City's Language Access Policy or accommodation pursuant to the American Disabilities Act shall have six (6) minutes.

3. Where more than ten (10) members of the public submit their request to the Clerk to speak on a particular agenda item, each member of the public shall have ninety (90) seconds to address the City Council. Any member of the public in need of a translator pursuant to the City's Language Access Policy or accommodation pursuant to the American Disabilities Act shall have one hundred eighty (180) seconds.

D. The rules of parliamentary practice contained in "Robert's Rules of Order" shall govern the Council where applicable and not otherwise inconsistent with any provision of this Code or other applicable laws.

1. Limits of debate by the City Council. Unless waived by consent of the City Council, a member of the City Council may speak on any debatable motion for an unlimited number of times for up to five (5) minutes at a time. This Section shall not apply to the time available for a Councilmember to present an item to the City Council. This Section shall apply to the conduct of the City Councilmembers during hearings. (ORD-22-0029 § 1, 2022; ORD-19-0021 § 1, 2019; ORD-14-0016 § 1, 2014; Ord. C-7966 § 1, 2005: Ord. C-7594 § 2, 1999: Ord. C-7559 § 2, 1998: Ord. C-7408 § 1, 1996: Ord. C-7313 § 2, 1995: Ord. C-7061 § 2, 1992; Ord. C-6974 § 1, 1992: Ord. C-6941 § 2, 1991; Ord. C-6911 § 2, 1991; Ord. C-6720 § 1, 1990; Ord. C-6638 § 1, 1989; Ord. C-5629 § 1, 1980, Ord. C-5288 § 1, 1977; prior code § 2212 (Rule 4))

2.03.050 Voting.

A. No member of the Council shall be allowed to explain his vote or discuss the question while the roll is being called, and no member shall be allowed to change his vote after the vote is announced by the Mayor; provided, however, that this rule may be suspended by the affirmative votes of two-thirds (2/3) of the members of the Council present; however, any member may cast his vote and thereupon file with the City Clerk a written explanation of his vote and ask that such explanation be spread upon the minutes.

B. Except when a conflict of interest exists and abstention is required by State law, every member of the Council who is present when a roll is called shall vote for or against the question, unless excused by a majority of the members present, prior to the calling of the roll on such question.

C. Two (2) or more members may demand that a vote be taken by yeas and nays. The taking of a vote by yeas and nays shall not be ordered unless demanded by two (2) or more members of the Council, except upon the passage of ordinances, resolutions and special permits, and on all street proceedings and matters pertaining to public improvement and motions directing the appropriation of money. (Ord. C-5700 § 3, 1981; prior code § 2212 (Rule 5))

2.03.060 Committees.

A. All committees shall be established by resolution of the City Council. The Mayor shall appoint the members of all such committees and shall designate which member of each committee shall act as Chairman and Vice Chairman. The Mayor may act as an ex officio member of all committees of which the Mayor is not an official member.

B. Each such committee established by resolution of the City Council shall hold a meeting upon the call of the Chairman thereof, or, in case of his refusal or inability to act, upon the call of the Mayor. All committee meetings shall be public meetings, except in those instances where an executive session may properly be held under the Brown Act or other applicable law.

C. An agenda shall be prepared containing the specific items of business to be transacted, along with a brief general description of each item to be heard at a committee meeting. Items of business shall be placed on the agenda at the direction of the Chairman, Vice Chairman, or member of such committee.

D. All City Council Committee meetings shall end by the time listed for the next Committee meeting, Closed Session, or City Council meeting, as reflected in the published agenda. (ORD-19-0021 § 2, 2019; ORD-11-0005 § 1, 2011; Ord. C-5607 § 1, 1980; Ord. C-5396 § 1, 1978: prior code § 2212 (Rule 6))

2.03.065 Confirmation procedure.

A. Any appointment to any commission created by the City Charter, which is submitted by the Mayor to the City Council for confirmation, shall not be placed on the City Council's agenda for action until the matter has first been reviewed by the City Council Standing Committee responsible for the review of Charter Commission appointments.

B. Upon the City Clerk's receipt of the Mayor's communication to the City Council regarding any such appointment, the Clerk shall immediately transmit said communication to the Chairman and members of the City Council Standing Committee responsible for the review of Charter Commission appointments. The City Clerk shall also place a report on the City Council agenda indicating that the Mayor's communication has been received and that it has been transmitted to the committee.

C. The City Council Standing Committee responsible for the review of Charter Commission appointments shall hold a meeting to consider and make its recommendation regarding any such appointment to the City Council within thirty (30) days from the date the Mayor's communication concerning said appointment was received by the City Clerk.

D. This rule may be waived by the City Council at its discretion with respect to any particular appointment. (ORD-23-0021 § 1, 2023; Ord. C-6798 § 1, 1990)

2.03.070 Reports.

A. All communications, requests and all documents shall be referred by the presiding officer to the proper department of the City, or to the proper Councilman Committee, or to the Councilman of the district affected, or to any other proper officer of the City, unless immediate action is taken thereon by the Council. When so referred for a report thereon, the report shall be made to the City Manager without delay; and the City Manager shall thereupon report his or her findings to the Council when, in his or her opinion, such action is necessary; otherwise, the City Manager shall act upon all matters so referred and make a return of his or her actions to the Council at the following regular session for the purpose of clearing the calendar and minute records.

B. Subject to the relevant provisions of the Ralph M. Brown Act, no agenda item shall be heard or considered by the Council unless it is in writing, signed by the Councilmember, City officer, department director, or presiding officer of the body making the agenda request, and filed with the City Clerk prior to twelve noon (12:00) on the Monday the week before the meeting at which the agenda item is to be considered by the Council. Should a holiday occur on a Monday, the agenda item is then due prior to twelve noon (12:00) on the Friday preceding the Monday holiday. The requirement of this Subsection may be waived if a written communication is signed by three (3) Councilmembers and directed to the City Clerk requesting that a particular item be placed on an agenda for consideration and that communication is filed with the City Clerk before twelve noon (12:00) of the Friday immediately before the Tuesday at which such agenda item is to be considered.

C. If any matter is referred to any officer, board, commission or committee for report without specifying the date upon which such report shall be made, the City Clerk shall call the matter upon report at the first regular meeting of the Council following the expiration of ten (10) days from the date of such reference. (ORD-08-0005 § 1, 2008; Ord. C-5261 § 1, 1976; prior code § 2212 (Rule 7))

2.03.075 Fiscal impact analysis for citizen advisory committees and commissions.

Any proposal to create or form any citizen advisory committee, commission, board, task force or other such entity shall not be submitted for consideration and final action by the Mayor and/or City Council until a fiscal impact analysis report has been prepared by the City Manager and reviewed by the Economic Development and Finance Committee.

The fiscal impact analysis shall consist of a statement of the estimated fiscal impact and potential effect of the proposal on City revenues, and may include a recommended appropriation ceiling to limit the total amount of City resources authorized to be utilized for said entity, and may identify any appropriate public or private revenue sources.

The Economic Development and Finance Committee shall hold a noticed public meeting to review the fiscal impact analysis report within two (2) weeks from the date said matter is referred to the committee, and shall immediately thereafter submit its comments to the City Council relating to: (a) the feasibility of the cost estimates and recommended appropriation ceiling; and (b) any public or private revenue sources or enhancements that may be available; and (c) the most appropriate City or private sector resources to furnish support for the proposed board, committee, commission or task force. (Ord. C-6581 § 1, 1989)

2.03.076 Fiscal impact statement for agenda items authored by a Councilmember.

Any agenda item authored and submitted by any Councilmember shall state the fiscal impacts of the requested action. The item shall contain a fiscal impact statement prepared by such Councilmember, indicating whether approval of the requested action is anticipated to have a significant fiscal impact, no significant fiscal impact, or no fiscal impact. For fiscal impacts of a determinate nature, the fiscal impact statement shall include such Councilmember's estimate of increases or decreases in City expenditures or revenues that would result if the requested action was to be approved by the City Council. (ORD-11-0006, § 1, 2-15-2011)

2.03.080 Ordinances and amendments.

A. No ordinance shall be presented to the Council or considered by it unless such ordinance has been previously ordered prepared by a motion duly and regularly adopted, or by report and with recommendations of the ordinance committee.

B. No proposal of amendment to any ordinance or resolution pending before the Council shall be presented to or considered by the Council unless the same is in writing, setting forth the page and line at which the amendment is to be made,

stating in full the matter to be stricken or added and, in the event that the amendment consists of a substitution, stating, in full, the matter to be stricken and the matter to be substituted in lieu thereof. Such written proposal shall be filed by the City Clerk and a copy thereof spread upon the minutes of the meetings as a motion. (Prior code § 2212 (Rule 8))

2.03.085 Resolution may establish fees and charges.

Unless otherwise prohibited by law, the Council may from time to time set fees and charges related to and arising out of the activities of the various departments of the City by resolution duly adopted by the Council in accordance with applicable provisions of law. (Ord. C-6750 § 1, 1990)

2.03.090 Hearings and debates.

A. No ordinance, resolution, motion, petition, appeal, report or any other matter, thing or proceeding whatsoever, presented by any person not a member of the Council, shall be presented to or considered by the Council unless the subject matter thereof, signed by the person desiring to be heard in connection therewith, is presented, in writing, to the City Clerk before twelve o'clock (12:00) noon on the Monday of the week immediately preceding the date of the meeting at which the same is to be considered; provided, however, that the requirement of this Subsection may be waived by the Council in the exercise of its sound and reasonable discretion.

B. No person shall address the Council without first securing the permission of the Mayor so to do; and no person, other than a member of the Council, shall speak more than once during the consideration of any one question, of whatever nature, at the same meeting, except that the person presenting the matter to the Council may speak a second time for a period not to exceed two (2) minutes, for the purpose of closing. Except for testimony at public hearings, all addresses to the Council, other than from members thereof, shall be limited to three (3) minutes. It shall be the duty of the City Clerk to keep the Mayor advised of the time consumed by each speaker and upon such advice from the City Clerk, it shall be the duty of the Mayor to strictly enforce this rule. Every person, other than a member of the Council, desiring to speak on any subject shall, standing in the place indicated for such purpose, address the presiding officer of the Council as " Mayor", and when recognized and given permission to proceed by the Mayor, may, but is not required to, first state their name and address in order that the same may be made a record in the minutes of the meeting; provided, however, that this rule, or any part thereof, may be suspended by the affirmative votes of two-thirds (⅔) of the members of the Council present. (ORD-22-0029 § 2, 2022; Ord. C-6594 § 1, 1989; Ord. 5700 § 4, 1981; Ord. 5261 § 2, 1976; prior code § 2212 (Rule 9))

2.03.100 Decorum.

A. Any person desiring to address the Council shall state what they wish to present and obtain permission of the Mayor before proceeding. No person shall be permitted to use lewd, vicious or personal language which disrupts the meeting under Section 2.03.140 of this Chapter, and, should they do so, it will be the duty of the Mayor, or other presiding officer, to not permit them to continue to disrupt the meeting.

B. No member of the Council shall leave the Council chamber without permission from the Mayor. (ORD-22-0029 § 3, 2022; Prior code § 2212 (Rule 10))

2.03.110 Suspension of rules.

Except as otherwise provided in this Chapter, no rule contained in this Chapter shall be rescinded, modified, suspended, altered or changed except by a vote of two-thirds (⅔) of all the members of the Council, and at least one (1) days' notice, in writing, being given of the motion therefor. (Prior code § 2212 (Rule 11))

2.03.120 Manager and City Attorney attendance.

The City Manager and the City Attorney shall attend all regular sessions of the Council, and may

at any time be permitted to interpose suggestions on any matter under consideration and shall be recognized by the presiding officer for such purpose. (Prior code § 2212 (Rule 12))

ARTICLE II. GENERAL REGULATIONS

2.03.140 Disturbing Council meetings.

A. No person without authority of law shall disrupt any meeting or session of the Council, or of any legally constituted board or commission of the City.

B. The Mayor, or other presiding officer, must first warn an individual that their behavior is disrupting the meeting or session and that failure to promptly cease their behavior could result in their removal. A warning is not required for removal if the disruptive individual uses force or makes a true threat of force.

C. Once the procedure in Subsection B is followed, the disruptive individual may be removed from the meeting or session.

D. "Disrupt" or "disrupting" means engaging in behavior during a meeting or session of the Council, or of any legally constituted board or commission of the City, that actually disrupts, disturbs, impedes, or renders infeasible the orderly conduct of the meeting, including but not limited to the following:

1. A failure to comply with reasonable and lawful regulations adopted by the body pursuant to Section 54954.3 of the Government Code or any other law;

2. Engaging in behavior that constitutes use of force or a true threat of force;

3. Engaging in conduct that may interfere with the rights of other speakers;

4. Engaging in conduct that prevents the body from accomplishing its business in a reasonably efficient manner; and

5. Using lewd, vicious, or personal language that actually disturbs or impedes the meeting.

E. "True threat of force" means a threat that has sufficient indicia of intent and seriousness that a reasonable observer would perceive it to be an actual threat to use force by the person making the threat. (ORD-22-0029 § 3, 2022; Prior code § 2211)

ARTICLE III. LEGISLATIVE DEPARTMENT

2.03.170 Appointment of employees.

Each individual member of the Long Beach City Council shall have the authority to appoint, suspend, remove and discipline the employee or employees of the Legislative Department who serve on his or her personal staff. The Mayor, with the concurrence of the City Council, shall have authority to appoint, suspend, remove and discipline the employees of the Legislative Department who do not serve on the personal staff of any individual Councilmember. (Ord. C-6199 § 1 (part), 1985)

2.03.180 Administration of department.

The Legislative Department shall be administered and operated in accordance with and pursuant to the applicable provisions of the City Charter and the ordinances, resolutions and administrative regulations adopted, approved or promulgated by the City Council. (Ord. C-6199 § 1 (part), 1985)

CHAPTER 2.06 CITY OFFICERS*

2.06.010 City offices—Business hours.

All offices of the City shall keep their respective offices open for the transaction of business every day, except on Saturdays, Sundays, and legal holidays. Normal business hours for all City offices shall be from eight o'clock (8:00) a.m. to five o'clock (5:00) p.m. Except for offices under the jurisdiction of the City Council and elected officers, the City Manager shall adjust business hours of the offices for which he or she has administrative responsibility under Section 300 of the Charter of the City of Long Beach, in the City Hall and other City buildings, and shall direct the time of each workday that nonessential office lighting and other energy consuming equipment shall be turned

*Cross reference—Provisions concerning specific City officers are found in the City Charter.

off to reduce and minimize monthly charges for electrical service. (Ord. C-5720 § 1, 1981: prior code § 2100)

2.06.020 Bonds.

The City Manager shall obtain from a corporation, authorized to do business in California as a surety, a bond naming the City as obligee and covering all officials and employees of the City. Such bond shall be in an amount not less than one million dollars ($1,000,000.00) and shall protect the City from loss caused by fraudulent or dishonest acts of such officials and employees. Such bond may be subject to such deductible amount as shall be approved by the City Manager. Such bond, before its acceptance by the City, shall be approved in the manner prescribed by the City Charter. (Ord. C-5908 § 1, 1991: prior code § 2720.1)

2.06.050 Mayor's expenses.

The City Council finds that in the performance of official duties on behalf of the City, the Mayor is required to make certain expenditures for entertainment and other sundry purposes. The City Council further finds and determines that one hundred dollars ($100.00) per month is a reasonable amount to reimburse the Mayor for such out of pocket entertainment and sundry expenses: and subject to appropriation by the City Council, the Mayor shall be reimbursed at the rate of one hundred dollars ($100.00) per month for entertainment and sundry expenses without being required to furnish invoices, vouchers or other documentation. (Ord. C-5730 § 1, 1981: prior code § 2213)

2.06.060 Reserved.

Editor's note—ORD-23-0019 § 2, adopted April 18, 2023, repealed § 2.06.060 entitled "Compensation for members of boards and commissions," which derived from: ORD-20-0021 § 1, 2020; and Ord. C-6497 § 1, 1988.

CHAPTER 2.07 CODE OF CONDUCT AND ETHICS*

2.07.010 Values statement.

The people of Long Beach depend on a city government that operates equitably, ethically, and that works to promote and preserve public trust and confidence. Thus, the City commits to the following values:

A. Accountability through the willingness to accept responsibility and account for one's actions.

B. Equity by ensuring fairness and due process.

C. Impartiality by being loyal to the public good.

D. Diversity by embracing histories, values, and ideas from all backgrounds, and recognizing their contribution to improving the City's operations, services, and programs.

E. Transparency in actions and practices that are open to public observation and scrutiny.

F. Integrity by being truthful, seeking truth, and adherence to the City's values. (ORD-22-0035 § 1, 2022)

2.07.020 Written pledge.

It is incumbent for every representative of the City of Long Beach to uphold the City's Code of Conduct and Ethics. Representatives of the City shall commit to undertaking their duties with the highest ethical principles and to place the public's interest above their own.

Prior to assuming office, employment, or volunteering with the City, representatives of the City, including employees of every City department, elected officials, appointed officials, commission-

*__Editor's note__—ORD-22-0035 § 1, adopted Dec. 6, 2022, amended Ch. 2.07 in its entirety to read as herein set out. Former Ch. 2.07, §§ 2.07.010 and 2.07.020 was entitled "Code of Ethics," and derived from: Ord. C-7839 § 1, 2003; and ORD-06-0050 § 1, 2006.

ers, committee members, board members, interns, and volunteers shall pledge, in writing, to uphold the following principles while acting in their role or official capacity:

A. To be truthful and honest, including:

1. Acting with integrity and demonstrating courage in all dealings.

2. Ensuring that all completed work activities are accurate and that any biases have been identified and addressed.

3. Being accurate and honest in all interactions and communications with others.

B. To place the public's trust before their own personal interests, including:

1. Being objective and impartial.

2. Never engaging in acts of collusion, kickbacks, bribes, unlawful gifts, conflict of interest, or other improper influence, nor condoning such acts by others.

3. Not permitting personal interests to impair the individual's judgment or action.

4. Not using the individual's position with the City for the individual's private gain, for the endorsement of any product, person, or enterprise, or for private gain of relatives or friends.

5. Disclosing, and if necessary, recusing oneself from the decision-making process and any activities, dealings, and transactions on behalf of the City that may be related or be influenced by the individual's personal, financial, or outside activities.

C. To be transparent, including:

1. Ensuring that all work products are completed in an open manner, with the knowledge that it may be subject to public inspection and/or release.

2. Disclosing all personal, financial, or professional interests or outside activities that may relate to or influence the individual's role or official capacity.

3. Promptly reporting any perceived or actual conflict of interest that may arise prior to rendering a decision, providing information, or offering a recommendation.

4. Cooperating and supporting inquiries, reviews, audits, or other investigations that may be conducted by the City or other enforcement agencies.

5. Complying with the Ralph M. Brown Act (California Government Code section 54950 et seq.) and observing all rules with respect to notice and public meetings.

6. Committing to not discussing or communicating on matters to be voted on by the City Council or a City board, commission, or committee with another member of the body outside the public meeting in a manner inconsistent with the Ralph M. Brown Act commitment to transparency.

D. To be accountable, including:

1. Complying with all federal, State, and City laws and regulations as well as applicable policies and procedures.

2. Being fiscally responsible with managing and overseeing City funds and resources, as it pertains to the individual's assigned responsibilities.

3. Abiding by all applicable requirements pertaining to gifts and gratuities, including donations and honoraria.

4. Adhering to all policy and procedures and contractual commitments to safeguard the integrity of the City's procurement and bidding and competitive processes.

E. To safeguard all information, data, and assets entrusted to the individual's care, including:

1. Protecting City data to promote cybersecurity and preserve confidentiality and privacy concerning the property, personnel, or other affairs of the City.

2. Handling and safeguarding all non-public and proprietary information as protected under agreement or public law.

3. Protecting all City assets, resources, and information to the best of the individual's knowledge from loss, theft, and misuse.

4. Protecting the interests of the City and those who have placed their trust in the individual.

F. To recognize historic inequities and disparities and to support diversity and be inclusive in all the individual's actions, including:

1. Respecting the diverse histories, values, and experiences represented in the City's various communities.

2. Anticipating effects of a decision on people in the City, especially if specific groups may be disproportionately harmed or helped.

3. Working to ensure that all people in the City have the ability to actively participate and engage and work to eliminate barriers to public involvement in decisions, programs, and services.

4. Being mindful of the community's needs and be cognizant of their experience when interacting with City services.

5. Incorporating an equity lens consistent with City policy to ensure all policies and procedures are developed to provide equitable and socially just programs and services for all residents and employees.

G. To treat others with dignity, including:

1. Listening, being approachable, open-minded, asking questions, and participating when engaged.

2. Treating all colleagues, the public, stakeholders, and anyone transacting business with the City with respect.

3. Conveying the City's care for, and commitment to, its communities.

4. Being courteous and civil in all interactions and communications with others.

H. To make data-informed decisions, and embrace excellence and innovation, including:

1. Being a role model by striving for excellence, maintaining standards, being open to change, recognizing the need to compromise, and always working to improve the City's programs and services.

2. Being proactive and innovative when setting goals and conducting the City's business.

3. Promoting innovation that will enrich and transform the City's services, operations, and budget.

I. To avoid even the appearance of impropriety and seek ethical guidance and immediately report a perceived Code of Conduct and Ethics violation, conflict of interest, fraud, waste or misuse of City resources, and inappropriate behavior to the appropriate authority for investigation. (ORD-22-0035 § 1, 2022)

2.07.030 Required ethics training.

A. Employees of every City department, elected officials, appointed officials, commissioners, committee members, board members, interns, and volunteers shall complete training related to the ethical values, principals, and conduct outlined in this Chapter on an annual basis.

B. In the event that a member of any City Charter Commission or advisory body fails to complete the ethics training required by California Government Section 53234 et seq., within the time period specified therein, that person shall automatically be removed from membership from the commission or advisory body. (ORD-22-0035 § 1, 2022)

CHAPTER 2.08 LOBBYISTS

2.08.010 Interpretation.

Unless the term is specifically defined in this Chapter or the contrary is stated or clearly appears from the context, the definitions set forth in Government Code Sections 81000 et seq., shall govern the interpretation of this Chapter. (ORD-10-0006 § 1, 2010)

2.08.020 Definitions.

For the purposes of this Chapter, the following definitions shall be applicable:

A. "Activity expense" means any payment made by a lobbyist to or directly benefiting any City official, City official-elect or member of his or her immediate family. Activity expenses include gifts, honoraria, consulting fees, salaries and any other form of compensation, but do not include campaign contributions.

B. "Administrative action" means the proposal, drafting, development, consideration, ad-

vocacy or recommendation of any rule, regulation, agreement or contract, permit, license or hiring action.

C. "City official" means any public official, legislative staff member or City employee who participates in the consideration of any legislative or administrative action other than in a purely clerical, secretarial or ministerial capacity. It shall also include any City board or commission member, or City representative to any joint powers authority to which the City is a party, and any consultant to the City.

D. "Consultant" means an individual who, pursuant to a contract with the City:

1. Makes a governmental decision whether to:

a. Approve a rate, rule or regulation;

b. Adopt or enforce a law;

c. Issue, deny, suspend, or revoke any permit, license, application, certificate, approval, order, or similar authorization or entitlement;

d. Authorize the City to enter into, modify, or renew a contract provided it is the type of contract which requires City approval;

e. Grant City approval to a contract which requires City approval and in which the City is a party or to the specifications for such a contract;

f. Grant City approval to a plan, design, report, study or similar item;

g. Adopt or grant City approval of policies, standards or guidelines for the City, or for any subdivision thereof.

2. Serves in a staff capacity with the City and in the capacity performs the same or substantially all the same duties for the City that would otherwise be performed by an individual holding a position specified in the City's Conflict of Interest Code.

E. "Client" means a person who is represented by a lobbyist.

F. "Compensation" includes, but is not limited to, money of any denomination or origin; goods or services or anything of value, delivered or rendered; or promises to perform or provide services or contractual arrangements or awards.

G. "Gift" means gift as defined in the California Political Reform Act, Government Code Section 81000 et seq., as amended from time to time.

H. "Influencing" means the purposeful communication, either directly or through agents, promoting, supporting, modifying, opposing, causing the delay or abandonment of conduct, or otherwise intentionally affecting the behavior of a City official or official-elect, by any means, including, but not limited to, providing or using persuasion, information, incentives, statistics, studies or analyses; excepted from this definition is communication made as a part of a noticed governmental public meeting.

I. "Legislative action" means the drafting, introduction, consideration, modification, enactment or defeat of any resolution, ordinance, amendment thereto, report, nomination or other action of the Mayor, City Council, Redevelopment Agency of the City of Long Beach, Housing Authority of City of Long Beach, any joint powers authority of which the City is a party, or City board or commission, acting in its official capacity.

J. "Lobbying" is the influencing or attempting to influence a legislative or administrative action of the City.

K. "Lobbyist", unless exempt under Subsection 4. hereunder, means:

1. Contract lobbyist. A person who engages in lobbying on behalf of one (1) or more clients (acting individually or through agents, associates, employees or contractors) and who has received or has entered into an agreement for compensation of three thousand two hundred dollars ($3,200.00) or more ("threshold compensation") for engaging in lobbying during any consecutive three (3) month period;

2. Business or organization lobbyist. Any business or organization, whose owner(s), officer(s) or employee(s) carry out lobbying on its behalf, in an aggregate amount of fifty (50) hours or more within any three (3) month period, whether or not such officers or employees are specifically compensated to engage in lobbying; provided that the activities of officers shall be considered lobbying

only if those officers receive compensation by the business or organization beyond reimbursement for their reasonable, travel, meals or incidental expenses; or

3. Expenditure lobbyist. A person who makes payments or incurs expenditures of five thousand dollars ($5,000.00) or more during any calendar year in connection with carrying out public relations, advertising or similar activities with the intent of soliciting or urging, directly or indirectly, other persons to communicate directly with any

City official in order to attempt to influence legislative or administrative action. The five thousand dollars ($5,000.00) threshold shall not include:

a. Compensation paid to contract lobbyists or employees for lobbying; or

b. Dues payments, donations, or other economic consideration paid to an organization, regardless of whether the dues payments, donations or other economic consideration are used in whole or in part to lobby.

4. Exemptions to "lobbyist" are:

a. Any public official acting in his or her official capacity or acting within the scope of his or her employment or appointment;

b. The media, when limiting its action to the ordinary course of news gathering or editorial activity, as carried out by members of the press. "Media" shall mean newspapers or any other regularly published periodical, radio or television station or network or information published on the internet. This exemption shall also apply to neighborhood newsletters, flyers or gazettes;

c. Persons reimbursed for only their reasonable travel, meals or incidental expenses, including but not limited to, uncompensated members or directors of nonprofit organizations such as chambers of commerce;

d. Persons whose communications regarding any legislative or administrative action are limited to appearing or submitting testimony at any public meeting held by the City or any of its agencies, offices, or departments, as long as the communications thereto are public records available for public review. Notwithstanding the foregoing, persons who otherwise qualify as lobbyists must register and disclose their lobbying activities directed toward City officials, in the same manner and to the same extent such registration and disclosure is required of all other lobbyists;

e. Persons submitting bids or responding to requests for proposals, provided the provision of such information is limited to direct conversation or correspondence with the official or department specifically designated to receive such information;

f. Persons providing oral or written information pursuant to a subpoena or otherwise compelled by law or regulation, or in response to an official request provided that the request and response thereto are public records available for public review;

g. Persons whose communications relate to:

(i) The establishment, amendment, administration, implementation or interpretation of a collective bargaining agreement or a memorandum of understanding between the City and a recognized employee association.

(ii) Management decisions as to the working conditions of represented employees that clearly relate to the terms of a collective bargaining agreement or memorandum of understanding between the City and a recognized employee association.

(iii) Proceedings before the City's Civil Service Commission.

h. Board members or employees of nonprofit 501(c)(3) corporations;

i. Members of neighborhood associations or project area committees;

j. Board members and employees of organizations representing City business improvement districts.

L. "Organization" means any person that is not an individual.

M. "Person" means any individual, domestic or foreign corporation, for-profit or nonprofit entity, firm, association, syndicate, union, chamber of commerce, joint-stock company, partnership of any kind, limited liability company, common-law trust, society, or any other group of persons acting in concert. (ORD-10-0006, § 1, 2010)

2.08.030 Registration.

Lobbyists shall register with the City Clerk within fifteen (15) days after qualifying as a lobbyist under Section 2.08.020. (ORD-10-0006, § 1, 2010)

2.08.040 Annual registration renewal.

A lobbyist shall renew his or her registration by January 15 or each year unless he or she has terminated their status as a lobbyist pursuant to

Section 2.08.050, by such date. (ORD-10-0006, § 1, 2010)

2.08.050 Termination of lobbyist status.

After initial registration, annual registration renewal will not be required if a declaration attesting to the termination of lobbying services within the City has been filed with the City Clerk no later than January 15. (ORD-10-0006, § 1, 2010)

2.08.060 Active status.

All registrations, renewals and terminations will be deemed filed on the date received by the City Clerk. A lobbyist shall be deemed active for the duration of the year of registration ending December 31, unless a declaration attesting to termination of lobbying services within the City is filed. (ORD-10-0006, § 1, 2010)

2.08.070 Registration fees.

Persons subject to the registration requirements of this ordinance shall pay an annual fee set by resolution of the City Council. Persons registering for the first time after June 30 of a given year shall pay a reduced registration fee set by resolution of the City Council.

A. The applicable registration fee is due at the time of registration or registration renewal. Payment will be deemed delinquent thereafter. Delinquency fees may be assessed as specified in Subsection C below, if payment occurs after the due date.

B. In addition to the annual fee, each registrant shall pay a fee set by resolution of the City Council per client for whom lobbying is undertaken for compensation in excess of five hundred dollars ($500.00). The fees for clients as of the date of initial registration shall be submitted with the registration. The fees for subsequent clients will be due and submitted at the time of the submission of the relevant semi-annual report as required pursuant to Section 2.08.110 below.

C. A fine of twenty-five dollars ($25.00) per day for delinquent fees, up to a maximum of five hundred dollars ($500.00), will be assessed until compliance with the registration provisions herein. (ORD-11-0021, § 1, 2011; ORD-10-0006, § 1, 2010)

2.08.080 Required registration information.

Registration statements shall contain the information set forth in Section 2.08.090. (ORD-10-0006, § 1, 2010)

2.08.090 Disclosure.

The initial registration shall contain the name, business address, telephone and fax numbers of all persons required to register pursuant to this Chapter, including the names of all owners of sole proprietorships and partnerships of fewer than ten (10) persons. If the registrant is a corporation, it shall also include the names of the president, secretary, chief financial officer, and agent for service of process, if any. Any business or organization registering under this act shall also briefly describe the nature of its business or organization and contacted individual. In addition to this information, the report shall contain the following:

A. Contract lobbyist. The name, business address, telephone number of each client, the nature of each client's business and the item(s) of legislative or administrative action the lobbyist is seeking to influence on behalf of the client; and the name of each person employed or retained by the lobbyist to lobby on behalf of each client.

B. Business or organization lobbyist. The names of owners, officers or employees conducting lobbying activities and the item(s) of legislative or administrative action the lobbyist is seeking to influence.

C. Expenditure lobbyists. The item(s) of municipal legislative or administrative action the lobbyist is seeking to influence.

D. Payment received by the reporting lobbyist for services as a consultant or in any other capacity for services rendered to a City agency, any City official or any City official-elect or their controlled committees, any officeholder committee, or ballot measure committee. The dates of payment and name of each payer shall be included.

E. The name, address, title and telephone number of the person responsible for preparing the report, together with that individual's signature attesting to the authority of the signatory and the accuracy and truthfulness of the information submitted. (ORD-10-0006, § 1, 2010)

2.08.100 Subsequent disclosures.

For each six (6) month period following the date in which the lobbyist was required to register, the lobbyist must file a semi-annual report in duplicate with the City Clerk not later than fifteen (15) calendar days after the end of the qualifying period whether or not any lobbying activities have occurred during such period. Electronic reporting may also be permitted by the City Clerk. Each semi-annual report shall contain the same information as required to be disclosed in the initial registration, for those activities occurring in that period. If a lobbyist has terminated all lobbying activities during such period, the lobbyist may file a declaration of termination with the semi-annual report. The final semi-annual report shall include disclosure of any lobbying activities during the period of termination. (ORD-11-0021, § 2, 2011; ORD-10-0006, § 1, 2010)

2.08.110 Semi-annual reports.

Semi-annual reports are to be filed on or before July 15 and January 15 of each year, for the prior six (6) month period, and are delinquent thereafter. Electronic reporting may also be permitted by the City Clerk. (ORD-11-0021, § 3, 2011; ORD-10-0006, § 1, 2010)

2.08.120 Records retention.

Copies of the records pertaining to the above-required reports shall be preserved by the lobbyist for inspection and audit for a period of four (4) years from date of production. (ORD-10-0006, § 1, 2010)

2.08.130 Lobbyist identification.

When appearing in a lobbying capacity at a public meeting of the City Council or other City board or commission, a contract lobbyist shall identify himself/herself and the client(s) on whose behalf he/she is appearing, and a business or organization lobbyist shall identify himself/herself and the business or organization he/she represents. (ORD-10-0006, § 1, 2010)

2.08.140 Prohibitions.

It shall be unlawful for any lobbyist to commit any one (1) of the following acts:

A. Unauthorized Communications. Sending or causing any communication to be sent to any City official in the name of any nonexistent person or in the name of an existing person without the express or implied consent of such person.

B. Fictitious Persons. Contacting any officer of the City in the name of any nonexistent person or in the name of any existing person, except with the consent of such existing person.

C. Indirect Violations. Attempting to evade the requirements of this Chapter through indirect efforts or through the use of agents, associates, intermediaries or employees.

D. Creation of Obligations. Performing or sponsoring any act with the purpose and intent of placing any City official under personal obligation to the lobbyist. (ORD-10-0006, § 1, 2010)

2.08.150 Gifts.

It shall be unlawful for any lobbyist to deliver or cause to be delivered any gift to any City official, and for any City official to accept any gift from a lobbyist. (ORD-10-0006, § 1, 2010)

2.08.160 The City Clerk.

The City Clerk shall:

A. Oversee administration of this Chapter including creation of all forms and explanatory materials.

B. Post all submitted reports on the internet within a reasonable time of receipt of the reports.

C. Accept all required filings under this Chapter. (ORD-11-0021, § 4, 2011; ORD-10-0006, § 1, 2010)

2.08.170 Criminal penalties.

Any person who knowingly or willfully violates or causes any other person to violate any provision of this Chapter is guilty of a misdemeanor. (ORD-10-0006, § 1, 2010)

2.08.180 Injunction.

The City Attorney may seek injunctive relief in the courts to enjoin violations of or to compel compliance with the provisions of this Chapter. (ORD-10-0006, § 1, 2010)

2.08.190 Practice restrictions.

No person convicted of a violation of this Chapter may act as a lobbyist or otherwise attempt to influence municipal legislation for compensation for one (1) year after such conviction. (ORD-10-0006, § 1, 2010)

2.08.200 Limitation of actions.

Prosecution for violation of any provision of this Chapter shall be commenced within four (4) years after the date on which the violation occurred. (ORD-10-0006, § 1, 2010)

2.08.210 Cost of litigation.

The court may award costs of litigation including reasonable attorney's fees to the prevailing party in any action to compel compliance with the provisions of this Chapter. (ORD-10-0006, § 1, 2010)

2.08.220 Review of regulations.

On or before the first anniversary of the effective date of this Chapter, the City Council shall review the effectiveness of these regulations, and shall enact modifications, if necessary. (ORD-10-0006, § 1, 2010)

CHAPTER 2.09 REVOLVING DOOR RESTRICTIONS

2.09.010 Definitions.

For the purpose of this Chapter, the following words and phrases shall have the meanings set forth as follows:

"City official" means the Mayor, members of the City Council, City employees, members of all City boards, commissions and committees, and members of the boards of the Redevelopment Agency, Housing Authority and Long Beach Housing Development Company.

"Compensation" means money or any other thing of value that is received, or is to be received, in return for or in connection with lobbying services rendered, or to be rendered, including reimbursement of expenses incurred in lobbying. A person receives compensation within the meaning of this definition whether or not the compensation is received solely for activities regulated by this Chapter or is received for both lobbying activities and other activities as well. (Ord. C-7899 § 1, 2004)

2.09.020 Prohibition.

For one (1) year after leaving City service, no former City official shall, for a compensation, engage in direct communication with any department, agency or board ("agency") on which he or she served during the twelve (12) month period preceding his or her departure from City service, for the purpose of attempting to influence any action or decision on any matter pending before that agency on behalf of any other person. For one (1) year after leaving City service, no former Mayor or City Councilmember shall for compensation, engage in direct communication with any agency of the City for the purpose of attempting to influence any action or decision on any matter pending before that agency on behalf of any other person. (Ord. C-7899 § 1, 2004)

2.09.030 Exceptions.

The prohibition set forth in this Chapter shall not apply to the following:

A. A former City official representing himself or herself, in his or her individual capacity, in connection with any matter pending before any agency.

B. The activities of any former City official who is an elected or appointed officer or employee of any City, County, district, multijurisdictional, State or federal government agency, when that former City official or employee is solely represent-

ing that agency in his or her official capacity as an officer or employee of the agency. (Ord. C-7899 § 1, 2004)

2.09.040 Enforcement.

Any person who violates any of the provisions of this Chapter shall be guilty of a misdemeanor. In the sole discretion of the City Prosecutor, any violation of this Code may be prosecuted as either a misdemeanor or an infraction. (Ord. C-7899 § 1, 2004)

CHAPTER 2.10 VOLUNTEERS

2.10.010 Short title.

This Chapter shall be known and may be cited as the Long Beach Citizens Initiative and Voluntary Action Law. (Ord. C-7315 § 1, 1995)

2.10.020 Findings and declaration.

The City Council finds and declares that:

A. Since the spirit of volunteerism has long animated Long Beach citizens to give of their time and abilities to help others, the City would be wise to expand the already substantial use of volunteers in local governmental service wherever practically possible.

B. The spirit of citizen initiative and self-reliance needs to be recognized, fostered and expanded whenever possible in meeting basic human needs in the City.

C. In every neighborhood there are individuals who, by their personality, concern, experience, commitment and training, can serve as citizen action leaders and volunteers.

D. There presently exist sufficient local resources to assist volunteer citizen action efforts. There are an infinite number of skilled, experienced community groups, and volunteer organizations available to help mobilize citizen initiatives. Such groups include neighborhood, business and fraternal organizations, churches, women's organizations, voluntary action centers, schools and other community organizations in both the public and private sectors.

E. Legal and market disincentives and impediments need to be identified and eliminated in order to establish an optimum environment for citizen initiative and volunteer action in the cause of localism and in City government.

F. There is a need for a clearinghouse, to provide information concerning resources and alternatives to foster self-reliance and citizen action.

G. It is not the intent of the City Council that volunteers should replace or supplant public employees where such employees are providing services deemed necessary for the City government to perform but, rather, that they add new dimensions and insights to providing such governmental services. (Ord. C-7315 § 1, 1995)

2.10.030 Purpose and goals.

The purpose and goals of this Chapter are to provide a mechanism with the City government that will:

A. Foster the spirit of citizen initiative and voluntary action in City government to the full extent permitted by law;

B. Enable adequate communication and collaboration whereby individuals and agencies may converse with each other to initiate new programs or improve existing programs for citizen initiative and voluntary action at the local level;

C. Identify untapped human, technical and material local resources that can be mobilized for the public good through citizen initiative and voluntary action;

D. Open up the process of City government to provide a common ground for two (2) fundamental concepts, volunteerism and citizen initiative, to be brought together in mutually supportive relationships as a basis for better municipal services; and

E. Achieve an effective and permanent expansion of citizen initiative and voluntary action in City government problem solving and citizen participation in the delivery of local government services. (Ord. C-7315 § 1, 1995)

2.10.040 Definitions.

As used in this Chapter:

A. "Volunteer" means any person who, of his/her own free will, provides goods or services, without any financial gain, to any department or division of the City of Long Beach.

B. "Administrative volunteer" means any person serving voluntarily on boards, commissions or other similar bodies of the City of Long Beach.

C. "Direct service volunteer" means any person involved in specific volunteer service that includes one (1) to one (1) relationships or assistance to recipients of City services. (Ord. C-7315 § 1, 1995)

2.10.050 Volunteer coordinator.

The City Manager shall designate an appropriate department of the City and a person within that department to act as clearinghouse and coordinator of all volunteer activities in the City and to advocate and encourage citizen initiative and volunteer action within City government. The coordinator shall cooperate and interact fully in his/her activities with the office of the Mayor. (Ord. C-7315 § 1, 1995)

2.10.060 Intradepartmental coordination task force.

The City Manager shall direct each department director to designate one (1) departmental employee to serve as volunteer coordinator for that department. All such departmental coordinators shall constitute the intradepartmental coordination task force to assist the volunteer coordinator in carrying out his/her responsibilities under Section 2.10.050. The task force shall meet from time to time on call of the volunteer coordinator. (Ord. C-7315 § 1, 1995)

2.10.070 City Attorney assistance.

The City Attorney shall work closely with and advise the volunteer coordinator as to all matters relating to the volunteer program. Among other things, he/she shall cause the preparation of a concise statement of the City's legal position and responsibility relating to volunteers, which statement shall be available to all volunteers for their information. He/she shall also prepare a general purpose waiver form to be signed by all volunteers as a part of their indoctrination process and shall also assist in the preparation of all agreements entered into by the City relating to the use of volunteers. (Ord. C-7315 § 1, 1995)

CHAPTER 2.12 FIRE DEPARTMENT

2.12.010 Uniforms.

The Chief of the Fire Department, with the approval of the City Manager, shall prescribe the type of uniforms and accessories thereto to be furnished by each employee of the Fire Department holding a position in the classification of fireman and auto fireman, said uniforms to be maintained by said employee to the satisfaction of the Chief of the Fire Department. (Prior code § 3510.1)

CHAPTER 2.15 POLICE DEPARTMENT*

2.15.010 Report copies.

The Chief of Police is authorized to issue copies of police reports as provided in this Section:

A. The Chief of Police may charge and collect a fee commensurate with the direct costs of duplication of police reports as provided for in Section 2.99.010 of this Title.

B. No fee shall be charged for issuance of any such copy to a proper representative of the State or any County, City, district or other political subdivision.

C. Nothing contained in this Section shall be construed to limit any citizen's otherwise right of inspection of a public document.

***Cross reference**—Provisions on the Police Department, see the City Charter.

State law references—Provisions on the police, Gov. Code § 38630 et seq.; provisions on application for aid from the Peace Officer Training Fund, Penal Code § 13522; provisions on Peace Officer Training Fund and standards of recruitment and training of peace officers, Penal Code §§ 13500-13523.

D. No such copy shall issue a report or any portion thereof which is otherwise confidential, privileged in nature, or when the public interest would suffer by disclosure of the report or portion thereof. (Ord. C-7741 § 1, 2001; Ord. C-6238 § 1, 1986; prior code § 3580)

2.15.020 Fingerprinting fees.

The Chief of Police is authorized to furnish fingerprinting services as provided in this Section. The Chief of Police shall charge and collect for the City the actual costs for each set of prints taken at the request of persons applying for State or City license permits. No fingerprinting service fees shall be charged to those persons registering under the requirements of Penal Code Section 290 or Health and Safety Code Section 11590. (Ord. C-6238 § 2, 1986: Ord. C-5613 § 1, 1980: prior code § 3581)

2.15.030 Training—Policy.

The City declares that it desires to qualify to receive aid from the State under the provisions of Chapter 1 of Title 4, Part 4 of the Penal Code. (Prior code § 3520)

2.15.040 Training—Standards.

Pursuant to Section 13522 of Chapter 1 of the Penal Code, the City, while receiving aid from the State, pursuant to said Chapter, will adhere to the standards for recruitment and training established by the California Commission on Peace Officer Standards and Training. (Prior code § 3520.1)

2.15.050 Uniforms.

The Chief of Police, with the approval of the City Manager, shall prescribe the type of uniforms and accessories thereto to be furnished by each employee of the Police Department holding a position in the classification of patrolman, including patrolman assigned to motorcycle patrol, full-time monthly salaried school guard, policewoman, police matron and identification officer, said uniforms to be maintained by said employees to the satisfaction of the Chief of Police. (Prior code § 3510)

2.15.060 Reserve Corps—Established.

A Police Reserve Corps, hereinafter called "Corps", is established as a volunteer organization in the City to serve gratuitously, composed of persons appointed by the Chief of Police, hereinafter called the "Chief". (Ord. C-5536 § 1, 1979: prior code § 3550)

2.15.070 Reserve Corps—Direction.

Subject to the provisions of this Code, the Chief shall have complete authority and control over the Corps. He may appoint as members thereof any persons whom he deems to be qualified and may reject any application for membership. He may provide for the training of candidates for membership and for the further training of members. Membership in such organization is open to both men and women. The use of the masculine gender in this Code with reference to the Police Reserve Corps shall be so construed as to include the feminine. (Prior code § 3550.1)

2.15.080 California Law Enforcement Telecommunications System.

A. The Chief of Police and only the Chief of Police is authorized to permit various departments (or specific divisions or bureaus of departments) of the City to have access to the California Law Enforcement Telecommunications System (known as "CLETS") in accordance with written policies, rules and restrictions issued for such access to each department (or division or bureau of a department) by the Chief of Police and in accordance with CLETS policies, practices and procedures, as issued from time to time and which are incorporated herein and in the written policies, rules and restrictions issued by the Chief of Police, by this reference. Until the Chief of Police has issued such policies, rules and restrictions for a department (or division or bureau of a department), no department (or division or bureau of a department) other than the Police Department may have access to CLETS. Unless otherwise authorized by law, neither the City Manager, nor any other official of the City shall have authority to permit access to CLETS.

B. Nothing in this Section shall prohibit the City Manager, a City department (or division or bureau of a City department), a board, or an elected official from submitting an application to the CLETS Executive Secretary, or other entity authorized to accept applications on behalf of the California Department of Justice, in the name of the City Manager, the City department (or division or bureau of the City department), a board, or an elected official for direct access, interface, or the like to CLETS. And, if the City Manager, a City department (or division or bureau of a City department), a board, or an elected official submits an application in its own name for CLETS service and is approved by the CLETS Advisory Committee or its successor for direct access, interface or the like to CLETS, then this Section shall not apply to that approved applicant. (Ord. C-7616 § 1, 1999)

CHAPTER 2.17 DEPARTMENT OF DISASTER PREPAREDENSS AND EMERGENCY COMMUNICATIONS

2.17.010 Public Safety Dispatchers - recruitment and training standards.

A. The City of Long Beach desires to qualify to receive aid from the State of California under the provision of Section 13522 of the California Penal Code.

B. The City of Long Beach declares that it accepts the requirements of Section 13510(c) of the California Penal Code, and will adhere to the standards for recruitment and training established by the State of California Commission on Peace Officer Standards and Training (POST) for Public Safety Dispatchers.

C. The City of Long Beach will adhere to the requirements of Section 13512 of the California Penal Code, and the Commission and its representatives may make such inquiries as deemed appropriate by the Commission to ascertain that the City of Long Beach Public Safety Dispatcher personnel adhere to standards for selection and training established by the Commission on POST. (ORD-18-0016 § 1, 2018)

CHAPTER 2.18 ADVISORY BOARDS, COMMISSIONS AND COMMITTEES

2.18.010 Title and purpose.

This Chapter may be referred to as the uniform regulations for Council established advisory boards, commissions and committees. Its purpose is to provide uniform general regulations applicable to all boards, commissions and committees of the City established by the City Council for the performance of various prescribed duties and functions. (Ord. C-5705 § 1 (part), 1981: prior code § 2310)

2.18.020 Applicability.

A. The provisions of this Chapter shall apply to every advisory board, commission and committee of the City whether it is established by ordinance, resolution or otherwise. In the event any provision of this Chapter conflicts with a specific provision of an ordinance or resolution establishing a specific board, commission or committee, such specific provision shall control.

B. The City Council may create by ordinance such other appointive boards or commissions as it deems necessary and may grant to them powers and duties that are consistent with the provisions of this Chapter. The City Council, by motion adopted by the affirmative vote of at least a majority of its members, may appoint from time to time temporary committees or task forces to give counsel and advice to the City Council. (Ord. C-5705 § 1 (part), 1981: prior code § 2310.8)

2.18.030 Existing boards and commissions.

Members of existing appointive boards, commissions and committees on the effective date hereof shall continue in office and shall perform their duties until such duties are delegated to another body or such bodies are disbanded. (Ord. C-5705 § 1 (part), 1981: prior code § 2310.10)

2.18.040 Staff support.

Staff will arrange for new members to receive appropriate orientation when they assume their

official duties. Within the limits dictated by fiscal constraints, the City will endeavor to provide reasonable staff support to advisory bodies in order to permit them to perform their functions in an effective manner. (Ord. C-5705 § 1 (part), 1981: prior code § 2310.9)

2.18.050 General regulations.

The following regulations shall apply to all advisory bodies which are subject to this Chapter:

A. The members of each body shall be appointed by the Mayor and confirmed by a majority vote of all members of the City Council.

B. The members of each body must reside in the City at the time of appointment, and must maintain residence within the City at all times during their service on the advisory body. In the event a member is appointed to a body to represent a particular Councilmanic district within the City and the member later moves within the City to a different district or is drawn into a different district through redistricting efforts, said member may serve at-large and continue to represent the district they were appointed to until the conclusion of their term. After the expiration of said term, and if a vacancy on the same body exists, the member may be reappointed to represent their new district or an at-large seat on the body, subject to the terms of this Chapter and this Code. This Subsection is not intended to prevent the appointment of a member to a different body after their term has concluded.

C. The term of office shall be two (2) years for members of each body. Members may be reappointed after their initial term, but in no event shall any person who has served four (4) consecutive, two (2) year terms on the same body be eligible for reappointment to that body. Serving any portion of an unexpired term shall not be counted as service of one (1) term. Members not eligible for reappointment may continue to serve until their successors are appointed and qualified.

1. The terms of office for members of all advisory bodies shall terminate on June 30th. The terms of office for members of all advisory bodies shall start on July 1st.

2. If the City Council creates a body subject to this Chapter, at least 25% but no more than 50% of the inaugural members appointed to the body shall serve an initial term of two (2) years. Any inaugural members of a body that serve an initial two (2) year term shall be selected by lottery and are eligible for reappointment to four (4) additional two (2) year terms.

D. Members of advisory bodies may receive compensation for the performance of their official duties if such compensation is expressly provided by the City Council in the Salary Resolution of the City. Except for members of those bodies identified in City Charter Section 500, members of those advisory bodies identified in the Salary Resolution of the City shall have the option to serve for compensation, as a volunteer without compensation, or as a volunteer eligible for an expense reimbursement payment. Expense reimbursement payments are intended to reimburse members of advisory bodies serving as volunteers for related expenses incurred in the performance of their official duties. Members of any advisory body expressly compensated by the City Council in the Salary Resolution shall be ineligible to receive compensation or an expense reimbursement payment unless and until they have adhered to the requirements set forth in Subsection 2.18.050.G of this Code.

E. Appointments to fill vacancies on advisory bodies shall be handled in the same manner as original appointments. When a vacancy occurs during a term, the appointment to fill such vacancy shall be for the unexpired portion of the term.

F. The Mayor may remove any member of a City Council established advisory body at any time, with the concurrence of two-thirds (⅔) of the members of the City Council. Additionally, a member of a body subject to this Chapter shall be immediately and automatically removed from such body if:

1. A member is absent from three (3) consecutive meetings without permission of the body expressed in the official minutes of the body's meetings.

2. A member fails to comply with the requirements in Subsection G. of this Section. If a member fails to file any statement required by the City's Conflict of Interest Code within 30-days of a notice from the Clerk of their failure to file prior to the deadline, the member may request a waiver for good cause from the Mayor pursuant to provisions of this Subsection.

a. A member may seek a waiver for good cause from the Mayor excusing their failure to file any statement required by the City's Conflict of Interest Code within 30 days of receiving notice from the City Clerk of their failure to file. The Mayor may require documentation from the member requesting a waiver to prove good cause. The fact that a member has made multiple requests for a waiver to be excused for their failure to file any statement required by the City's Conflict of Interest Code shall be taken into consideration by the Mayor when granting a waiver authorized by this Subsection. If the Mayor grants such a waiver, said member may not be removed for failure to file any statement required by the City's Conflict of Interest Code within the calendar year the waiver was issued.

b. A waiver for good cause may be granted pursuant to this Subsection for any of the following reasons: incapacitation for medical reasons; hospitalization; accident involvement; loss or unavailability of records; or any other good cause shown.

c. A waiver for good cause may not be granted pursuant to this Subsection for any of the following reasons: the member was on vacation; the member was too busy; another person failed to file any statement required by the City's Conflict of Interest Code on the member's behalf; the member needed additional time to gather information to file; the member is waiting on professional assistance from another person, such as, a financial advisor, Certified Public Accountant, or the Fair Political Practices Commission; the member promises to file on time in the future; or the member did not receive an annual reminder to file the City's Conflict of Interest Code.

d. Any member removed pursuant to this Subsection F. shall also be prohibited from serving on any City board, commission, or committee for one (1) year from the date of removal.

G. Members of advisory bodies shall:

1. File a statement required by the City's Conflict of Interest Code with the City Clerk within thirty (30) days of assuming office, every year thereafter by April 1st, and within thirty (30) days of leaving office;

2. Ensure ethics trainings required pursuant to California Government Code Section 53234 et seq. and Chapter 2.07 of this Code are complete and current within the time periods specified therein;

3. Pledge in writing to uphold the principles in City's Code of Conduct and Ethics; and

4. Complete all trainings determined by the City Clerk to be necessary for effective service on an advisory body within one hundred twenty (120) days of assuming office, including, but not limited to, trainings on the City's strategic vision, ethics standards, and diversity, equity, inclusion, and racial justice principles.

H. All advisory bodies shall, at a minimum, provide an e-mail address or an alternative method of electronic communication on their agenda so that the public may have an opportunity to provide public comment for all Brown Act meetings of the body. (ORD-24-0004 § 2(Exh. A), 2024; ORD-23-0019 § 1, 2023; ORD-20-0021 § 2, 2020; Ord. C-5705 § I (part), 1981: prior code § 2310.1)

2.18.060 Selection of officers.

A. Each board, commission or committee shall have at least two (2) officers (such as Chairman and Vice-Chairman) and such other officers it deems necessary.

B. All officers shall be elected by the members for a term of one (1) year and no officer shall serve more than two (2) successive terms. (Ord. C-5705 § 1 (part), 1981: prior code § 2310.2)

2.18.070 Meetings.

A. All meetings of such bodies shall be open to the public and whenever possible shall be held at a City-owned facility.

B. Reasonable notice shall be given to the public prior to the convening of any meeting.

C. Minutes of each meeting shall be kept and filed with the City Clerk and copies of the minutes shall be sent to the Mayor and City Manager.

D. Each body shall meet at least quarterly.

E. Quorum shall be measured by calculating one more than half the seats authorized for the body by this Code or any other action of the City Council to create a body. Where the calculation for quorum results in a half number, said number shall be rounded up to the nearest whole number to determine the quorum. For example, quorum needed to conduct a meeting for a body with nine (9) seats would be five (5) members.

F. A motion shall carry upon the affirmative vote of the majority of the members present at any meeting. (ORD-24-0004 § 3(Exh. A), 2024; Ord. C-5705 § 1 (part), 1981: prior code § 2310.3)

2.18.080 Rules and regulations.

A. Each body may promulgate such rules and regulations for its conduct as it deems necessary. Meetings shall be conducted in accordance with Robert's Rules of Order.

B. All adopted rules and regulations shall be promptly filed with the City Clerk and shall bear the signature of the presiding officer. (Ord. C-5705 § 1 (part), 1981: prior code § 2310.4)

2.18.090 Reports.

A. Each body shall present an annual written report of its activities for the past year to the Mayor and Council; it may also make appropriate recommendations. The report shall include the following:

1. The name of the body;

2. Its objectives and functions;

3. A reference to all reports and recommendations presented to the City Council, including the number of subject matters referred by the City Council;

4. The number of meetings held;

5. Attendance records of all members;

6. The number of public hearings conducted;

7. The amount of money, if any, expended in support of that body;

8. A list of City personnel who regularly assist that body;

9. A recommendation as to whether that body should be abolished, modified or continued.

B. The annual report required by Subsection A must be submitted annually to the City Clerk on or before June 30th. The City Clerk shall forward the original report to the City Council and shall maintain a copy. Such reports shall be open to public inspection. (ORD-24-0004 § 3(Exh. A), 2024; Ord. C-5705 § 1 (part), 1981: prior code § 2310.5)

2.18.100 City Council duties.

The City Council shall:

A. Review and take necessary action to verify the reports submitted under Section 2.18.090;

B. Evaluate the performance of the reporting body based on the criteria provided in Section 2.18.110;

C. Between November 1st and February 1st:

1. Determine which bodies, if any, should be considered for continuation, modification or termination,

2. Conduct a public hearing on each body to be considered for modification or termination, to decide whether it should be modified or terminated. (Ord. C-5705 § 1 (part), 1981: prior code § 2310.6)

2.18.110 Criteria for review.

A. The City Council shall consider the following criteria in determining whether a public need exists for the continuation of a body subject to this Chapter:

1. Identify the objectives and the problems or needs which that body was to address; and the extent to which the objectives have been achieved;

2. The extent to which that body is needed and used;

3. The efficiency of that body;

4. The promptness and effectiveness of that body in disposing of its business;

5. The extent to which the jurisdiction of that body overlaps or duplicates the jurisdiction of another body; and the extent to which the functions of that body can be consolidated with those of other bodies;

6. The cost of operation;

7. The availability of less restrictive or other alternative methods of performing any function of that body which could adequately serve the public need;

8. The impact in terms of federal intervention or loss of federal funds if that body is abolished.

B. Nothing in this Chapter shall be construed to prohibit or limit the City Council from abolishing, modifying, or reorganizing any advisory body at any time it deems necessary or desirable. (Ord. C-5705 § 1 (part), 1981: prior code § 2310.7)

CHAPTER 2.21 REPRESENTATION ON BOARD OF DIRECTORS OF THE METROPOLITAN WATER DISTRICT OF SOUTHERN CALIFORNIA

2.21.010 Appointments.

The City representative to the Board of Directors of the Metropolitan Water District of Southern California, as authorized by the Metropolitan Water District Act, shall be designated and appointed by the Mayor with the consent and approval of the City Council. (Ord. C-5709 § 4 (part), 1981: prior code § 2400(a))

2.21.020 Term.

The term of office of the representative shall be for four (4) years commencing on the first day of January of an odd-numbered year and continuing until expiration of four (4) years or until his successor has been appointed and qualified. (Ord. C-5709 § 4 (part), 1981: prior code § 2400(b))

2.21.030 Incumbent.

The incumbent representative of the City on the Board of Directors of the Metropolitan Water District on the effective date of the ordinance codified in this Chapter shall serve until December 31, 1980, or until his successor has been appointed and qualified. (Ord. C-5709 § 4 (part), 1981: prior code § 2400(c))

2.21.040 Removal.

No duly appointed City representative to said Board of Directors shall be removed from office except for cause. (Ord. C-5709 § 4 (part), 1981: prior code § 2400(d))

2.21.050 Compensation.

The City representative shall receive compensation as may be fixed and prescribed by the City Council in the salary resolution of the City. (Ord. C-6766 § 1, 1990)

CHAPTER 2.24 BOARD OF HEALTH AND HUMAN SERVICES*

2.24.010 Created.

There is created a Board of Health and Human Services, in and for the City, to be known and designated as the Board of Health and Human Services of the City. (ORD-15-0020 § 1, 2015)

2.24.020 Members.

The Board shall consist of fifteen (15) members. All members must have a commitment to improving health in the City of Long Beach. Six (6) of said members shall be State licensed health professionals as follows: two (2) shall be physicians or surgeons, one (1) shall be a dentist, one (1) shall be a pharmacist, one (1) shall be a nurse (public health experience preferred), and one (1) shall be a veterinarian. Of the remaining nine (9) members, one (1) shall be a representative of the Long Beach Unified School District (nutrition and/or health background preferred), one (1) shall be a mental health professional, one (1) shall be an environmental health professional, one (1) shall represent a hospital or healthcare organization, and five (5) shall be selected to provide broad representation to the community and shall be knowledgeable in the health and human services area. At least a majority of all members of the

***Editor's note—**ORD-15-0020 § 1, adopted Aug. 11, 2015, amended ch. 2.24 in its entirety to read as herein set out. Former ch. 2.24 §§ 2.24.010—2.24.080, pertained to similar subject matter, and derived from Prior code §§ 5110—5110.7; Ord. C-5236 § 1, 1976; Ord. C-5709 § 2 (part), 1981; Ord. C-6143 §§ 1, 2, 1985; Ord. C-6230 §§ 1—3, 1986; and Ord. C-6812 §§ 1—5, 1990.

Cross reference—Provisions on the Department of Health and Sanitation, see the City Charter.

State law reference—Provisions on local health administration, Health and Safety Code § 50 et seq.

Board must reside in the City at the time of appointment, and must maintain residence within the City at all times during their service on the Board. Every effort should be made to appoint a Board which reflects the ethnic and gender composition of the City. A member who is or has been a member of the governing board or committee, or an officer, executive, employee, or a member of an entity or organization which applies for funds for human or social services from the City, shall refrain from participating in the discussion and consideration, and from influencing, either directly or indirectly, and shall abstain from any vote, regarding said application. (ORD-15-0020 § 1, 2015)

2.24.030 Duties of Department Director and Health Officer.

The Department Director and Health Officer of the City shall be ex officio and additional members of the Board of Health and Human Services. (ORD-15-0020 § 1, 2015)

2.24.040 Meetings.

Immediately following their appointment, the Board shall meet upon the call of the Department Director, and shall organize by electing one (1) of its members Chairman and any other officer it may deem advisable, said officers to serve for a period of one (1) year in such capacity. At said meeting, the Board shall select a regular meeting place and time, which regular meetings shall be held monthly. Special meetings may be called by the Chair at any time; and upon request from the Department Director, the Chair shall call such a meeting. (ORD-15-0020 § 1, 2015)

2.24.050 Advisory duties.

The Board shall act as an advisory body to consult with and advise the Department Director, the Council and City Manager on matters relating to public health in the City including community health safety issues concerning impacts of animals on matters related to disease and public health, to conduct hearings on matters pertaining to the public health and social service affairs of the City, and to report any findings or recommendations to the proper authorities for action. (ORD-15-0020 § 1, 2015)

2.24.060 Appropriation for expenses.

The Council shall appropriate such monies, at its discretion, as it may deem necessary for the purpose of defraying the actual expenses of carrying on the activities of the Board. (ORD-15-0020 § 1, 2015)

CHAPTER 2.27 AIRPORT ADVISORY COMMISSION*

2.27.010 Created.

There is created a Commission to be known and designated as the Airport Advisory Commission. (Ord. C-5709 § 1 (part), 1981: prior code § 2370)

2.27.020 Members.

A. The Airport Advisory Commission shall consist of nine (9) members. The members of the Commission must reside in the City at the time of appointment, and must maintain residence within the City at all times during their service on the advisory body;

B. No member may participate in any decision in which he or she has a material financial interest within the meaning of the California Political Reform Act. Each member shall file a statement of economic interest in accordance with the California Political Reform Act. (Ord. C-7834 § 1, 2002: Ord. C-5709 § 1 (part), 1981: prior code § 2370.1)

2.27.030 Duties.

The duties of the Commission shall be as follows:

A. Generally to consult with and advise the City Council in formulating City policies regarding the development and operation of the Long Beach Municipal Airport;

*Cross reference—Provisions pertaining to the suspension of members of commissions, see the City Charter.

B. To study and analyze, for the purpose of evaluation and recommendation of policy, problems which have been referred to it by the City Council, including, but not limited to: (1) a review of the master plan for the municipal airport and possible revision of modification thereof; and (2) a review of and the preparation of recommendations with respect to, fees, rental schedules and standards of service of the municipal airport.

Nothing contained herein shall be construed as investing the Commission, or any member thereof, with supervisory powers over the actions or duties of City employees. Neither the Commission nor any member thereof shall be concerned with day-to-day airport operations, construction, maintenance or repair activities, or other routine matters at the airport. (Ord. C-5709 § 1 (part), 1981; prior code § 2370.2)

CHAPTER 2.33 CITIZEN'S ADVISORY COMMISSION ON DISABILITIES

2.33.010 Created.

There is created a Commission to be known and designated as the Citizens' Advisory Commission on Disabilities. (Ord. C-7184 § 1 (part), 1994; Ord. C-5709 § 1 (part), 1981; Ord. C-5237 § 1 (part), 1976; prior code § 2397)

2.33.020 Members.

The Citizens' Advisory Commission on Disabilities shall consist of nine (9) members. Six (6) of the members shall be citizens from the City, and the remaining three (3) members shall be representatives from public and private agencies which provide services to disabled citizens in the City. As used in this Chapter, the term disabled person means a person having a physical or mental impairment which substantially limits such person from functioning in one (1) major life activity or more, or a person who has a record of such impairment or who is regarded as having such an impairment. As used in this Chapter, major life activity means any mental or physical function or activity which, if impaired, creates a substantial barrier to employment, housing, recreation, transportation, health service, or other life activity as identified by the Commission. (ORD-09-0011 § 1, 2009; Ord. C-7184 § 1 (part), 1994; Ord. C-5709 § 1 (part), 1981; Ord. C-5413 § 1 (part), 1978; Ord. C-5237 § 1 (part), 1976; prior code § 2397.1)

2.33.030 Duties.

The duties of the Commission shall be as follows:

A. To act in an advisory capacity to the Mayor, City Council and City Manager or their designated representatives on specific topics requiring input in dealing with concerns and/or issues affecting people with disabilities.

B. To assemble and disseminate to the Mayor, City Council, City Manager and the agencies which serve people with disabilities, information on issues affecting people with disabilities in the pursuit of employment, health services, housing, transportation, recreation, and other life activities as identified by the Commission.

C. To act on its own initiative to make recommendations to the Mayor, City Council and City Manager on corrective measures designed to eradicate artificial barriers to a full and productive life for people with disabilities.

D. To act to facilitate coordination, cooperation and communication between existing and proposed services for people with disabilities.

E. To carry out such studies as may be assigned to it by the Mayor, City Council and City Manager and which are accompanied by adequate City resources and support.

F. To provide expertise on issues affecting people with disabilities as requested by the various departments of the City, with the approval of the Mayor, City Council and/or the City Manager.

G. To report, from time to time, to the Mayor, City Council and City Manager its findings.

Nothing herein contained shall be construed as investing the Commission, or any member thereof, with supervisory powers over the actions or duties of City employees or the operations of

City departments. (Ord. C-7184 § 1 (part), 1994; Ord. C-5709 § 1 (part), 1981; Ord. C-5413 § 1 (part), 1978; Ord. C-5237 § 1 (part), 1976; prior code § 2397.2)

CHAPTER 2.36 ECONOMIC DEVELOPMENT COMMISSION*

2.36.010 Created.

There is created a Commission in and for the City to be known and designated as the Economic Development Commission. (ORD-14-0021 § 1, 2014)

2.36.020 Appointment, composition and terms of office.

The Economic Development Commission shall consist of eleven (11) members. At least a majority of the members of the Commission shall be residents of the City at the date of appointment. The remainder of the Commission may be comprised of residents of the City or individuals having a business interest in the City at the date of his/her appointment. The members of the Commission shall be appointed by the Mayor, subject to the confirmation of the City Council. The Mayor shall make no fewer than four (4) of said appointments to reflect experience in the following areas:

A. Business associations such as the Long Beach Area Chamber of Commerce, a Business Improvement District or Business Incubator/ Start-up Organization (Business Association);

B. Long Beach Unified School District, Long Beach City College, California State University, Long Beach, a Workforce Organization, Labor Organization or other education workforce experience (Education);

C. A representative of the real estate, insurance, legal, accounting, architecture or financial service industry or similar profession in Long Beach (Professional Services);

D. Long Beach Convention and Visitors Bureau, hospitality or other tourism experience (Tourism);

E. A representative with aerospace or airport-related business experience (Aviation);

F. The Port of Long Beach, international trade or global logistics experience (Goods Movement/ International Trade); or

G. A representative with health care, medical, pharmaceutical or related experience (Medical).

The remaining commissioners shall be appointed by the Mayor of the City subject to City Council confirmation, representing business or a business-related civic interest in Long Beach. (ORD-14-0021 § 1, 2014)

2.36.030 Duties.

The duties of the Commission shall be to advise and recommend to the City Council and the City Manager on matters pertaining to activities affecting economic development within the City, in the creation of private-sector employment opportunities and business ventures, on methods of coordinating economic efforts, and more specifically to advise and recommend to the City Council concerning the following:

A. The evaluation of research concerning economic growth patterns of the community;

B. The identification of economic development needs and opportunities in the community and the recommendation of program strategies for implementation by City staff;

C. The evaluation and recommendation of marketing plans for economic development programs; and

D. Any other areas or topics relating to Economic Development as directed by the City Council.

Nothing herein contained shall be construed as investing the Commission, or any member thereof, with supervisory powers over the actions or duties of City departments. (ORD-14-0021 § 1, 2014)

***Editor's note**—ORD-14-0021 § 1, adopted Dec. 9, 2014, amended Ch. 2.36 in its entirety to read as herein set out. Former Ch. 2.36, §§ 2.36.010—2.36.060, pertained to similar subject matter, and derived from Prior Code § 2398—2398.5; Ord. C-5253 § 1 (part), 1976; Ord. C-5966 §§ 1, 2, 1983; Ord. C-7620 §§ 1, 2, 1999; Ord. C-7676 § 1, 2000; and ORD-08-0022 § 1, 2008.

2.36.040 Organization.

A. All meetings shall be subject to the provisions of the Ralph M. Brown Act (California Government Code Section 54950 et seq.).

B. The Commission shall be subject to the provisions of Long Beach Municipal Code Chapter 2.18. If a specific provision of this ordinance conflicts with any provision of Long Beach Municipal Code Chapter 2.18, the specific provision shall control. (ORD-14-0021 § 1, 2014)

CHAPTER 2.38 CLIMATE RESILIENT AND SUSTAINABLE CITY COMMISSION*

2.38.010 Created.

There is created a Commission to be known as the Climate Resilient and Sustainable City Commission. (ORD-23-0031 § 2, 2023; ORD-07-0024 § 1 (part), 2007)

2.38.020 Purpose.

The purpose of the Commission shall be to make advisory policy recommendations to the City Council on issues relating to the environment, a sustainable City plan, efforts or programs to address environmental issues such as air quality, water quality, resource conservation relating to the protection and integrity of the natural environment, programs to increase education and awareness of the environment, to serve as a forum for community discussion of these environmental issues, and to encourage input and participation from all sectors of the community on issues of sustainability and the environment.

All recommendations of the Commission shall be submitted to the City Council in writing and shall include a summary of any citizen testimony before the Commission on each particular recommendation presented for consideration.

The Commission shall not sit as an adjudicatory body on any matter, including, but not limited to, the adequacy or certification of any environmental documents which are otherwise within the jurisdiction of the City Council or Planning Commission and shall have no authority to compel the attendance of persons before it. Each year the Commission shall prepare a work program outlining the focus for the Commission for review and approval by the City Council. (ORD-07-0024 § 1 (part), 2007)

2.38.030 Authority over City officers and employees.

The Commission shall neither interfere with nor impose itself on the powers and duties of the officers of the City as set forth in the City Charter, nor shall the Commission interfere with the management or operations of the City. Likewise, the Commission shall have no authority over employees of the City, and the provisions of Section 208 of the City Charter shall be applicable. (ORD-07-0024 § 1 (part), 2007)

2.38.040 Members.

A. The Commission shall be comprised of eleven (11) members. There shall be one (1) commission member representing each of the nine (9) councilmanic districts and two (2) members appointed at-large.

B. All members shall be appointed by the Mayor subject to confirmation by the City Council. Each member of the City Council shall nominate a maximum of three (3) individuals to the Mayor to represent each respective Council district.

C. Members of the Commission shall have a demonstrated concern for, and the desire to improve, the status of natural resources and living environment of the City, and may have professional or scholarly expertise in the environmental field, geology, hydrology, land use planning, ecology, or special expertise and demonstrated capabilities in fields relating to the social, economic or environmental aspects of life in the City.

D. Whenever a member desires to resign from the Commission, he or she shall inform the Chairperson in writing. Any member of the Commission may be removed by the Mayor with the con-

***Editor's note**—ORD-23-0031 § 1, adopted Aug. 15, 2023, amended the title of Ch. 2.38 to read as herein set out. Formerly, Ch. 2.38 was entitled "Sustainable City Commission."

sent and approval of the City Council. If a member is absent without the consent of the Commission from three (3) consecutive meetings, whether regular or special, such absence shall cause the member's retirement from the Commission. In the event a vacancy is created, it shall immediately be filled by the same method by which the member was appointed. (ORD-07-0024 § 1 (part), 2007)

2.38.050 Term of office.

A. The term of office for members of the Commission shall be four (4) years. No member shall serve for more than two (2) consecutive terms.

B. Notwithstanding the provisions of Subsection A of this Section, five (5) members first appointed to the Commission, including the two (2) at-large members and three (3) other members as determined by lottery, shall serve for an initial two (2) year term. Members serving an initial two (2) year term shall be eligible for re-appointment to one (1) additional four (4) year term. (ORD-07-0024 § 1 (part), 2007)

2.38.060 Applicability of Chapter 2.18 of the Long Beach Municipal Code.

Except as provided in this Chapter, the Commission shall operate and conduct its business in accordance with the provisions of Chapter 2.18 of this Code entitled "Advisory Boards, Commissions and Committees." (ORD-07-0024 § 1 (part), 2007)

CHAPTER 2.42 RESERVED*

*__Editor's note__—ORD-12-0009 § 1, adopted May 8, 2012, repealed Ch. 2.42 §§ 2.42.010—2.42.030, entitled "Golf Commission", which derived from: Prior code §§ 2320—2320.2; Ord. C-5709 § 1, 1981; and Ord. C-7025 § 1, 1992.

CHAPTER 2.44 EQUITY AND HUMAN RELATIONS COMMISSION†

2.44.010 Created.

There is created a Commission to be known and designated as the Equity and Human Relations Commission. (ORD-21-0036 § 1, 2021)

2.44.020 Duties.

A. To furnish the opportunity for the promotion and encouragement of positive human relations among community members, groups, and institutions and to consider, promote and develop programs for the reduction of tension, conflict, or violence which may arise from intolerance, prejudice and discrimination based upon race, religion, national origin, age, gender, sexual orientation, or mental or physical disability.

B. To cultivate and sustain equity, diversity, and inclusion in the City through accountability and measurable outcomes to provide accountability and transparency in government in the City.

C. To submit advisory policy recommendations to the City Council regarding policies, systems, and programs:

1. To promote goodwill, better relations, and full acceptance among all people in the community;

2. To foster a more equitable and socially-just Long Beach at the individual, community, and systems level;

3. Related to and affecting human relations, social justice issues, and equity, including racial equity and reconciliation;

4. In the areas of research and education for the purpose of lessening racial, religious, or other prejudice and of fostering attitudes among various groups which lead to civil peace and intergroup understanding; and

†__Editor's note__—ORD-21-0036 § 1, adopted Nov. 9, 2021, amended Ch. 2.44 in its entirety to read as herein set out. Former Ch. 2.44, §§ 2.44.010—2.44.060 was entitled "Human Relations Commission," and derived from Ord. C-6570 § 1 (part), 1989.

__State law reference__—Provisions pertaining to human relations commissions, Gov. Code § 50260 et seq.

5. Which will promote understanding and cooperation between the various departments of the City and community members, including programs relating to human relations training for City employees.

D. Review and make recommendations on the Equity Action Plans implemented pursuant to the City's Framework for Racial Equity and Reconciliation and any other similar equity- or social justice-related plans or programs required by the City Council regarding the same.

E. To collaborate on project development with community groups, City commissions, and other related institutions, including, but not limited to, the Human Dignity Program to foster a more equitable and socially-just Long Beach at the individual, community, and systems level.

F. To submit a report to the City Council annually that details the status and progress on equity measures in the City, including, but not limited to, progress on the action items in the City's Racial Equity and Reconciliation plan.

G. To advise and make recommendations to the Council on any other areas or topics relating to equity, human relations and social justice as directed by the City Council. (ORD-21-0036 § 1, 2021)

2.44.030 Members.

A. The Equity and Human Relations Commission shall consist of fifteen (15) members who are broadly representative of racial, ethnic, religious, labor, business, age, gender, sexual orientation and disabled members of the general public and those groups impacted by inequity at the individual, community, and systems level. All members shall be appointed by the Mayor subject to confirmation by the City Council. An equity lens should be applied to commissioner appointments to ensure adequate representation of the community and those groups impacted by inequity at the individual, community, and systems level. There shall be one (1) commission member appointed to represent each of the nine (9) City Council districts and six (6) members appointed at large. Each member of the City Council shall nominate an

individual to the Mayor to represent each respective Council district. The Mayor will notify the members of the City Council of the names of the nominees at least one (1) week prior to the placement of the appointments on the Council agenda for confirmation.

B. Members of the Commission should possess personal, professional or academic experience related to equity, human relations, and social justice, including, but not limited to, one (1) or more of the following areas: Diversity, Equity, and Inclusion (DEI); anti-racism; immigration; criminal justice reform; and services or organizations that work with marginalized groups.

C. Members of the Commission must attend an implicit bias and anti-racism training within ninety (90) days of being appointed to the Commission. (ORD-21-0036 § 1, 2021)

2.44.040 Authority.

A. The Commission shall make only advisory policy recommendations to the City Council on human relations matters, social justice issues, and equity matters. Accordingly, the Commission shall not sit as an adjudicatory body on any such matters and shall have no authority to compel the attendance of persons before it. The Commission shall neither be considered in theory nor function as a Police Review Board.

B. Neither the Commission nor any individual member thereof shall have any administrative or operational duties, functions or responsibilities and shall have no supervisory power or any authority over any officers, agents or employees of the City or the operation or conduct of any City department.

C. Recommendations from the Commission shall follow the established processes set by the City Manager for advisory commissions, committees, and boards to transmit their recommendations to the City Council. (ORD-21-0036 § 1, 2021)

2.44.050 Applicability of Chapter 2.18.

Except as provided in this Chapter, the Commission shall be governed by and shall operate and conduct its business in accordance with the provisions of Chapter 2.18 of this Code entitled "Advisory Boards, Commissions and Committees". (ORD-21-0036 § 1, 2021)

CHAPTER 2.45 COMMISSION FOR WOMEN AND GIRLS

2.45.010 Created.

There is created a Commission to be known and designated as the Commission for Women and Girls. (ORD-23-0029 § 1, 2023)

2.45.020 Definition.

For the purposes of this Chapter, the following definition shall be applicable:

A. "Women and girls" means all who live as female-identified, including: cisgender and transgender, and those who identify as gender-expansive, non-binary, non-conforming, and genderqueer. (ORD-23-0029 § 1, 2023)

2.45.030 Duties.

A. To gather information and evaluate the needs and concerns of women and girls in Long Beach within the broader context of gender equity;

B. To inform and advise the City Council on issues and inequities affecting women and girls in Long Beach;

1. Recommend changes related to gender equality in existing City policies, programs and practices;

2. Recommend new policies, programs and practices that promote and ensure equal rights and opportunities for all genders;

3. Recommend protecting and promoting visibility for women who are mothers, caregivers or older adults;

4. Identify matters of discrimination, prejudice, health and safety;

5. Encourage the participation, visibility and leadership of all women and girls.

C. To recommend policy changes using an intersectional feminist lens, ensuring that women's overlapping identities, including but not limited to race, ethnicity, sexual orientation, age, disability,

class, religion, and marital status, are considered in decision-making related to City policies, programs, practices and resource allocation;

D. To consult and coordinate with other public agencies, commissions, and organizations serving women and girls on matters related to the Commission;

E. To conduct studies and surveys on the status of women and girls related to gender equity, as requested by the Mayor and City Council, and provide a report back to the City Council thereafter;

F. To submit a report to the City Council annually that details the status and progress on activities and recommendations. (ORD-23-0029 § 1, 2023)

2.45.040 Members.

The Commission for Women and Girls shall consist of eleven (11) members who demonstrate a commitment to advocating and advancing the well-being of Long Beach women and girls. It is the intent that the Commissioners appointed shall be from a diverse cross-section of Long Beach, including women of all racial backgrounds, ethnicities, sexual orientation, age, disability, class, religion, and partner status. There shall be one (1) commission member appointed to represent each of the nine (9) City Council districts and two (2) members appointed at large. Members of the Commission will be nominated by the Mayor and confirmed by the City Council. (ORD-23-0029 § 1, 2023)

2.45.050 Term of office.

A. The term of office for members of the Commission shall comply with Chapter 2.18 of this Code.

B. Notwithstanding the provisions of Subsection A of this Section, five (5) members first appointed to the Commission, including the two (2) at-large members and three (3) other members as determined by lottery, shall serve for an initial two (2) year term. Such members serving an initial two (2) year term shall be eligible for re-appointment to four (4) additional two (2) year terms. (ORD-23-0029 § 1, 2023)

2.45.060 Authority.

A. The Commission shall make only advisory recommendations to the City Council related to establishing and maintaining equal rights, equity, social justice, representation, and opportunities for all regarding gender, specifically serving women and girls who live or work in Long Beach. This includes all who live as female-identified: cisgender and transgender, and those who identify as gender-expansive, non-binary, non-conforming, and genderqueer. Accordingly, the Commission shall not sit as an adjudicatory body on any such matters and shall have no authority to compel the attendance of persons before it.

B. Neither the Commission nor any individual member thereof shall have any administrative or operational duties, functions or responsibilities and shall have no supervisory power or any authority over any officers, agents or employees of the City or the operation or conduct of any City department.

C. Recommendations from the Commission shall follow the established processes set by the City Manager for advisory commissions, committees, and boards to transmit their recommendations to the City Council. (ORD-23-0029 § 1, 2023)

2.45.070 Applicability of Chapter 2.18.

Except as provided in this Chapter, the Commission shall be governed by and shall operate and conduct its business in accordance with the provisions of Chapter 2.18 of this Code entitled "Advisory Boards, Commissions and Committees." (ORD-23-0029 § 1, 2023)

CHAPTER 2.46 INDUSTRIAL DEVELOPMENT AUTHORITY

2.46.010 Need declared.

In accordance with the California Industrial Development Financing Act (Title 10, commencing with Section 91500, of the Government Code of the State of California), hereinafter referred to

as the Act, the City Council finds and declares that there is a need for an industrial development authority to function in the City. (Ord. C-5747 § 1, 1981)

2.46.020 Duties generally.

The City Council further declares that an industrial development authority shall function in the City in accomplishment of the purposes provided in the Act, and to carry out and complete projects and perform and exercise derivative obligations and powers as set forth in the Act. (Ord. C-5747 § 2, 1981)

2.46.030 Board of Directors designated.

The City Council further declares itself to be the Board of Directors of such industrial development authority, and all the rights, powers, privileges, duties, liabilities, disabilities, and immunities vested in such a Board under the Act shall be vested in the City Council as such Board. (Ord. C-5747 § 3, 1981)

2.46.040 Advisory Board designated.

The Economic Development Commission of the City is designated as advisory body to the industrial development authority of the City and shall perform such functions relating thereto as may, from time to time, be assigned by the City Council. (Ord. C-5747 § 4, 1981)

2.46.050 Official title.

The authority established in the City by the Act and authorized to transact business and exercise its powers thereunder by this Chapter shall be known as the "Industrial Development Authority of the City of Long Beach." (Ord. C-5747 § 5, 1981)

2.46.060 Charter authority not limited.

Nothing contained in this Chapter nor any part or provision hereof, including but not limited to the establishment of the industrial development authority of the City, shall be construed to in any way limit the authority of the City, as a Chartered City of the State of California, to undertake any and all activities of which it is capable through the exercise of its Charter powers. (Ord. C-5747 § 6, 1981)

CHAPTER 2.48 MARINE ADVISORY COMMISSION

2.48.010 Created.

There is created a Commission to be known and designated as the "Marine Advisory Commission." (Ord. C-7100 § 1 (part), 1993)

2.48.020 Members.

The Marine Advisory Commission shall consist of nine (9) members. (Ord. C-7145 § 1, 1993: Ord. C-7100 § 1 (part), 1993)

2.48.030 Duties.

The duties of the Commission shall be as follows:

A. Generally, to consult with and advise the Council in formulating City policies regarding the marinas, beaches, waterways adjacent thereto and facilities thereon;

B. To study and analyze, for the purpose of evaluation and recommendation of policy, problems which have been referred to it by the City Council;

C. To perform such other functions as are specifically conferred on the Commission by the City Council;

D. Nothing contained herein shall be construed as investing the Commission, or any member thereof, with supervisory powers over the actions or duties of City employees or the operations of City departments. Neither the Commission nor any of its members shall, except for purposes of inquiry, give, either directly, indirectly, publicly or privately, orders or directions to any City employees. (Ord. C-7100 § 1 (part), 1993)

CHAPTER 2.50 TECHNOLOGY AND INNOVATION COMMISSION

2.50.010 Created.

There is created a commission to be known as the Technology and Innovation Commission. (ORD-14-0015 § 1, 2014)

2.50.020 Purpose.

A. The purpose of the Commission shall be:

1. To advise the Council on new technology, including research, development and operation of new technology;

2. To provide a forum for the exchange of ideas to increase the effectiveness of information technology management;

3. To support and assist in the strategic direction and implementation of information technology and communication; and

4. To assess new technology to assist the City in improving efficiency, quality and accountability.

B. All recommendations of the Commission shall be submitted to the City Council in writing and shall include a summary on each particular recommendation presented for consideration.

C. The Commission shall not sit as an adjudicatory body on any matter. Each year the Commission shall prepare a work program outlining the focus for the Commission for review and approval by the City Council. (ORD-14-0015 § 1, 2014)

2.50.030 Authority over City officers and employees.

The Commission shall neither interfere with nor impose itself on the powers and duties of the officers of the City as set forth in the City Charter, nor shall the Commission interfere with the management or operations of the City. Likewise, the Commission shall have no authority over employees of the City, and the provisions of Section 208 of the City Charter shall be applicable. (ORD-14-0015 § 1, 2014)

2.50.040 Duties.

The duties of the Commission shall be to advise and make recommendations to the City Council on matters pertaining to technology and innovation within the City, and more specifically to advise and recommend to the City Council concerning the following:

A. The evaluation of research concerning emerging technology and its uses in City government and the community at large;

B. The identification of technology needs and opportunities in the community and the recommendation of program strategies for implementation by City staff;

C. The evaluation and recommendation of outreach plans for City technology programs;

D. Performing such other duties related to technology and innovation as may be requested from time to time by the City Council. (ORD-14-0015 § 1, 2014)

2.50.050 Members.

A. All members shall be appointed by the Mayor subject to confirmation by the City Council. All members must have a commitment to improving technology in the City of Long Beach. No fewer than five (5) members of the Commission must reside in the City at the time of appointment, and must maintain residence within the City at all times during their service on the advisory body.

B. The Commission shall be comprised of seven (7) members.

1. Three (3) at-large members, with no additional qualifications required;

2. One (1) member with experience with technology startups/innovation;

3. One (1) member with experience with mobile/app technology;

4. One (1) member with experience in technology and education; and

5. One (1) member with experience in networking, servers or databases.

C. No member may participate in any decision in which he or she has a material financial interest within the meaning of the California Po-

litical Reform Act. Each member shall file a statement of economic interest in accordance with the California Political Reform Act.

D. Whenever a member desires to resign from the Commission, he or she shall inform the chairperson in writing. Any member of the Commission may be removed by the Mayor with the consent and approval of the City Council. If a member is absent without the consent of the Commission from three (3) consecutive meetings, whether regular or special, such absence shall cause the members' retirement from the Commission. In the event a vacancy is created, it shall immediately be filled by the same method by which the member was appointed.

E. Notwithstanding the expiration of a term, a commissioner shall continue to serve until a successor has been appointed. (ORD-14-0015 § 1, 2014)

2.50.060 Organization.

A. The Commission shall elect a chair and vice-chair from among its members annually, each for a term of one (1) year. The chair, or in the absence of the chair, the vice-chair, shall preside over the meetings of the Commission. No person shall serve more than two (2) successive one-year terms in either office.

B. Regular meetings shall be held not less than quarterly on a date established from time to time by resolution of the Commission. (ORD-14-0015 § 1, 2014)

2.50.070 Term of office.

A. The term of office for members of the Commission shall be two (2) years. No member shall serve for more than four (4) consecutive terms.

B. Notwithstanding the provisions of Subsection A of this Section, three (3) members first appointed to the Commission, including the two (2) at-large members and one (1) other member as determined by lottery, shall serve for an initial one (1) year term. Members serving an initial one (1) year term shall be eligible for re-appointment to three (3) additional two (2) year terms. (ORD-14-0015 § 1, 2014)

2.50.080 Applicability of Chapter 2.18 of the Long Beach Municipal Code.

Except as provided in this Chapter, the Commission shall operate and conduct its business in accordance with the provisions of Chapter 2.18 of this Code entitled "Advisory Boards, Commissions and Committees." (ORD-14-0015 § 1, 2014)

CHAPTER 2.52 PUBLIC SAFETY ADVISORY COMMISSION

2.52.010 Created.

There is created a Commission to be known as the Public Safety Advisory Commission. (Ord. C-6069 § 1 (part), 1984)

2.52.020 Purpose.

The purpose of the Commission shall be to make advisory policy recommendations to the City Council on public safety issues, to serve as a forum for community discussion of these public safety policy issues, and to encourage input and participation from all sectors of the community. The Commission is to consider only those public safety policy matters over which the City Council has control that are related to police and fire services. Specific emphasis shall be placed on:

A. Support and encouragement for expansion of the neighborhood watch and Citizens Emergency Response Team (CERT) programs. To this end, block captains of each organized neighborhood watch shall be invited to meet with the Commission at least twice each calendar year;

B. Specific public safety needs of the community, as directed by the City Council;

C. Methods of increasing public safety awareness by making recommendations on the best means of communication, such as through the schools, etc.;

D. Recommending commendations to private citizens and public employees for significant contributions to public safety;

E. Consideration of traffic flow within the City;

F. Special projects and programs furthering the interests of public safety, including promotion of a City-wide public safety fair; and

G. Methods of enhancing community relations with City departments involved in public safety.

All recommendations of the Commission shall be submitted to the City Council in writing and shall include a summary of citizen testimony before the Commission on each particular recommendation presented for consideration.

The Commission shall not sit as an adjudicatory body on any matter and shall have no authority to compel the attendance of persons before it.

The Commission shall not consider and/or attempt to resolve citizen complaints about specific incidents or allegations against public safety officers or other employees of the City, but may only address those broad policy issues set forth above which may be presented by such complaints. (ORD-07-0031 § 1, 2007: Ord. C-6069 § 1 (part), 1984)

2.52.030 Authority over City officers and employees.

The Commission shall neither interfere with nor impose itself on the powers and duties of the officers of the City as set forth in the City Charter, nor shall the Commission interfere with the management operations of the City. Likewise, the Commission shall have no authority over employees of the City, and the provisions of Section 208 of the City Charter shall be applicable. (Ord. C-6069 § 1 (part), 1984)

2.52.040 Members.

A. The Commission shall be comprised of a total of thirteen (13) members. There shall be one (1) Commission member representing each of the nine (9) Councilmanic districts and four (4) members appointed at-large.

B. All members shall be appointed by the Mayor, subject to confirmation by the City Council. The members representing each Councilmanic district shall be appointed from a pool of at least three (3) nominees to be submitted by each member of the City Council to represent their respective Councilmanic district.

C. Three of the at-large members shall be appointed as a representative of the National Association for the Advancement of Colored People, the League of Latin Americans and the Asian Pacific Family Outreach, respectively, and shall be selected from a pool of at least three (3) nominees submitted to the Mayor by each of the organizations. The Mayor shall appoint the fourth at-large member as a representative of a minority group in the community which is not represented by the three (3) other at-large members.

D. It is the intent of the City Council that the Commission shall be constituted to provide a representative balance of members based on the demographic makeup of the City as reported by City's Department of Planning and Building; and, that the at-large appointments will be made to achieve this balance.

E. Whenever a member desires to resign from the Commission, he or she shall inform the Chairperson in writing. Any member of the Commission may be removed by the Mayor with the consent and approval of the City Council. If a member is absent without the consent of the Commission from three (3) consecutive meetings, whether regular or special, such absence shall cause the member's retirement from the Commission. In the event a vacancy is created, it shall immediately be filled by the same method by which the member was appointed. (Ord. C-6069 § 1 (part), 1984)

2.52.050 Term of office.

The term of office for members of the Commission shall be four (4) years. No member shall serve for more than two (2) consecutive terms. This Commission shall be deemed the successor to the Public Safety Advisory Committee created by the City Council by Resolution No. C-23492. Officers and members of that Committee on the effective date of this Chapter, shall automatically become officers and members of the Public Safety Advisory Commission serving in the same capacities as previously on the Public Safety Advisory Committee. For those officers and members who automatically become officers and members of the Public Safety Advisory Commission, their terms

of office shall expire on the date such terms would have expired if the Public Safety Advisory Committee continued in existence. However, prior service on the Public Safety Advisory Committee and overlapping terms from the Public Safety Advisory Committee to the Public Safety Advisory Commission shall not be counted in the limitation of service on this commission to two (2) consecutive four (4) year terms. (Ord. C-6069 § 1 (part), 1984)

2.52.060 Applicability of Chapter 2.18 of the Long Beach Municipal Code.

Except as provided in this Chapter, the Commission shall operate and conduct its business in accordance with the provisions of Chapter 2.18 of this Code entitled "Advisory Boards, Commissions and Committees." (Ord. C-6069 § 1 (part), 1984)

CHAPTER 2.54 RECREATION COMMISSION

2.54.005 Authority.

A. In accordance with Section 902 of the Long Beach City Charter, the City Council prescribes that the Recreation Commission shall have exclusive authority over all public leisure activities of a recreational character in or upon playgrounds, athletic fields, ball parks, recreation centers, swimming pools, streets, public buildings, play areas in parks, tennis courts and other suitable places used, owned, controlled or operated by the City within its corporate limits, and the activities in or upon them, and the use of all of the hereinabove described places for athletic sports, or contests, games, aquatic games, community leagues, pageants, dramatics, music, public amusements and entertainments and other recreational and play programs or activities, whether herein specified or not, excepting therefrom, however, all activities conducted in or upon land, water areas and all public buildings and facilities situated upon the tide or submerged lands granted to the City of Long Beach by the State of California pursuant to Chapter 676, Statutes of 1911, Chapter 102, Statutes of 1925, Chapter 158, Statutes of 1958 first extraordinary session, and Chapter 138, Statutes of 1964, first extraordinary session and land, water areas and public buildings and facilities situated within the local coastal zone corporate limits of the City of Long Beach and the municipal golf links which shall remain under the jurisdiction of the City Council. The provisions of this Section shall apply to adults as well as to minors.

B. The Recreation Commission shall also perform the following duties:

1. Recommend to the City Manager plans for the development, beautification and maintenance of public park and recreational areas, including parks, recreation centers, playgrounds, beaches, parkways and the City cemetery;

2. Investigate and recommend to the City Manager the acquisition of land for parks and recreational purposes;

3. Perform such other duties relating to park areas as may be required or suggested by the City Council. (Ord. C-6159 § 1, 1985; Ord. C-6107 § 1, 1984; Ord. C-6066 § 1, 1984; Ord. C-5802 § 1, 1982; prior code § 2336)

2.54.010 Appeal of decisions.

A. Who may appeal. Any aggrieved person may appeal a decision or action of the Recreation Commission involving a City sponsored program, service or facility to the City Council. For purposes of this Section, an "aggrieved person" means any person who personally or through a representative appeared and testified at a public meeting or hearing of the Recreation Commission in connection with the decision or action appealed or who by other appropriate means prior to a meeting or hearing informed the Recreation Commission of the nature of his concerns. "Aggrieved person" includes an applicant or other real party in interest.

B. Time and place to file appeal. An appeal must be filed within ten (10) calendar days after a decision or action, and the appeal shall be filed with the City Clerk on a form provided by the City. The City Clerk shall promptly notify the Recreation Department when an appeal is filed.

C. Public hearing. The City Clerk shall set the appeal for hearing by the City Council by designating the hearing date on the Council's consent calendar. The hearing shall be held within thirty (30) days after the filing of the appeal, but for good cause, such hearing may be continued from time to time by the City Council.

D. Notice of hearing. Not less than ten (10) calendar days before the hearing, the City Clerk shall give notice of the hearing to the appellant, applicant or other real party in interest and to any other person who has made a written request for a notice. The City Clerk shall also give notice of hearing to the Recreation Commission by serving the notice on the Recreation Department.

E. Written report. Not less than five (5) days before the hearing, the Recreation Department shall file a written report with the City Clerk outlining the Recreation Commission's action or decision being appealed. Such report shall be distributed to City Councilmembers prior to the hearing and copies shall be made available to parties involved in the appeal on the hearing date.

F. Hearing on appeal. After a hearing, the City Council may affirm, modify or overrule the decision or action of the Recreation Commission but any such action of the Recreation Commission but any such action by the City Council shall require a two-thirds (2/3) majority vote. If the City Council fails to obtain the requisite votes to affirm, modify or overrule, the decision or action of the Recreation Commission shall stand.

G. Fees. By resolution, the City Council may set fees for the filing of an appeal. (Ord. C-5676 § 1, 1981; prior code § 2335)

CHAPTER 2.56 COMMISSION ON YOUTH AND FAMILIES

2.56.010 Created.

There is created an advisory commission, in and for the City, to be known and designated as the Commission on Youth and Families. (ORD-18-0019 § 1, 2018)

2.56.020 Purpose.

The purpose of the Commission shall be to advise the Mayor and City Council of the needs, concerns, and problems of youth and families, to make policy recommendations regarding the City's efforts to serve youth and families, to promote coordination between the City of Long Beach, the Long Beach Unified School District, other county, state and national organizations, and community agencies, and to recognize outstanding contributions or accomplishments on behalf of Long Beach youth and families. (ORD-18-0019 § 1, 2018)

2.56.030 Duties.

The duties of the Commission shall be to advise and make recommendations to the City Council on matters pertaining to youth and families, and more specifically to do the following:

A. To promote coordination among youth and family serving agencies with a strong focus on the coordination between the City and the Long Beach Unified School District;

B. To serve as an advisory body to the Department of Parks, Recreation and Marine on matters pertaining to youth and family programs;

C. To hold an annual youth forum led by the youth members, with mentorship from the adult members, that would engage youth from throughout the community in a conversation about the issues and concerns they feel are facing the youth today, as well as their suggested solutions. The outcome would be reported to the Commission and the City Council;

D. To support efforts to promote current City initiatives that benefit youth and families, including but not limited to: My Brother's Keeper, Building Healthy Communities and All Children Thrive. The Commission shall receive and file reports from committees working with these initiatives as well as review new initiatives focused on youth and families; and

E. To perform such other duties related to youth and families as may be requested from time to time by the City Council. (ORD-18-0019 § 1, 2018)

2.56.040 Members.

A. The Commission shall be comprised of nine (9) members as follows:

1. Seven (7) adult members; and

2. Two (2) youth members under the age of nineteen (19) at the time of appointment.

B. At least one (1) adult member of the Commission shall be a board member of the Long Beach Unified School District Board of Education.

C. All members of the Commission should possess experience working with or serving youth and/or families. Although not required, it is desired that members possess experience and expertise in one or more of the following areas related to youth and family services: social services, health services, job training, education, early childhood development, juvenile justice or safety, and services related to youth and children's "out of school" activities.

D. When a youth member reaches the age of twenty-one (21), then the appointment of that youth member shall automatically end and another youth member who meets the criteria described in this Section shall be appointed to fill the remainder of that term. (ORD-18-0019 § 1, 2018)

2.56.050 Applicability of Chapter 2.18 of the Long Beach Municipal Code.

Except as provided in this Chapter, the Commission shall operate and conduct its business in accordance with the provisions of Chapter 2.18 of this Code entitled "Advisory Boards, Commissions and Committees." (ORD-18-0019 § 1, 2018)

CHAPTER 2.57 ADVISORY COMMISSION ON AGING*

2.57.010 Created.

There is created a Commission to be known and designated as the Advisory Commission on Aging. (ORD-23-0028, § 1, 2023; Ord. C-5709 § 1 (part), 1981; prior code § 2395)

2.57.020 Members.

The Advisory Commission on Aging shall consist of nine (9) members. Members shall be selected from the older adult segment of the City's residents and shall be at least fifty (50) years of age. No paid representative of any public or private older adult service organization shall serve as a member of this Commission.
(ORD-23-0028, § 1, 2023; ORD-09-0020 § 1, 2009; ORD-05-0014 § 1, 2005; Ord. C-5709 § 1 (part), 1981; prior code § 2395.1)

2.57.030 Duties.

The duties of the Commission shall be as follows:

A. To act in an advisory capacity to any City department or City Council Committee concerned with problems on all matters pertaining to older adults and their needs;

B. To assemble information on problems and their solutions for older adults through all available means including public hearings;

C. To be empowered on its own initiative to make recommendations to older adult service agencies on matters within its purview;

D. To act to facilitate coordination between existing and proposed programs for older adults;

E. To carry out such studies as may be assigned to it by the City Council;

F. To from time to time report to the Mayor and City Council its findings.

Nothing herein contained shall be construed as investing the Commission, or any member thereof, with supervisory powers over the actions or duties of the City employees or the operations of City departments. (ORD-23-0028 § 1, 2023; Ord. C-5709 § 1 (part), 1981; prior code § 2395.2)

CHAPTER 2.60 VETERANS AFFAIRS COMMISSION

2.60.010 Created.

There is created a Commission in and for the City to be known and designated as the Veterans Affairs Commission. (ORD-16-0003 § 1, 2016)

2.60.020 Purpose.

The purpose of the Commission is to serve as an advisory body to the City Council concerning

*Editor's note—ORD-23-0028 § 1, adopted June 20, 2023, amended the title of Ch. 2.57 to read as herein set out. The former Ch. 2.57 was entitled "Senior Citizen Advisory Commission."

the well-being of military veterans in Long Beach. The Commission shall provide recommendations on matters pertaining to the affairs of veterans residing within the City. The Commission may evaluate and recommend programs, policies, and practices designed to assist veterans in multiple capacities, and act as a central clearing house for information, programs and services relating to veterans in the Long Beach community. (ORD-16-0003 § 1, 2016)

2.60.030 Members.

The Veterans Affairs Commission shall consist of nine (9) members. There shall be one (1) member representing each of the nine (9) Councilmanic districts. At least four (4) members of the Commission shall be veterans. Members of the Commission shall have a concern for, and dedication to, the needs of veterans in the City. (ORD-16-0003 § 1, 2016)

2.60.040 Organization.

A. All meetings shall be subject to the provisions of the Ralph M. Brown Act (California Government Code section 54950 et seq.).

B. The Commission shall be subject to the provisions of Long Beach Municipal Code Chapter 2.18. If a specific provision of this ordinance conflicts with any provision of Long Beach Municipal Code Chapter 2.18, the specific provision shall control. (ORD-16-0003 § 1, 2016)

CHAPTER 2.63 CULTURAL HERITAGE COMMISSION*

2.63.010 Purpose.

It is declared that the recognition, preservation, protection and use of cultural resources are necessary to the health, property, social and cultural enrichment and general welfare of the people. The purpose of this Chapter is:

A. To protect, enhance and perpetuate districts, buildings, structures, natural features, works of art, signs and other similar objects that are reminders of past eras, events and persons important in local, State or national history, or that provide significant examples of architectural styles of the past, or that are unique and irreplaceable assets to the City and its neighborhoods, or that provide for this and future generations significant examples of the physical surroundings in which past generations lived;

B. To develop and maintain appropriate settings and environments for cultural resources;

C. To increase the economic and financial benefits to the City and its inhabitants by promoting the City's tourist trade and thereby stimulating local business and industry;

D. To enhance the visual character of the City through the preservation and rehabilitation of varied building types and styles that reflect the City's cultural, social, economic, political and architectural history;

E. To encourage the rehabilitation, restoration and adaptive reuse of cultural resources using the best practices in the field of historic preservation principles;

F. To promote public understanding and appreciation of the unique architectural and cultural heritage of the City through educational programs; and

G. To strengthen civic pride in the beauty and notable accomplishments of the City's past, and thereby encourage community involvement in the City's future. (ORD-15-0038 § 1, 2015)

2.63.020 Definitions.

A. "Alteration" means physical change to a district, building, structure, natural feature, work of art, sign or similar object subject to the provisions of this Chapter.

B. "Applicant" means a person, persons, association, partnership, corporation, or other busi-

---

***Editor's note**—ORD-15-0038 § 1, adopted Dec. 1, 2015, amended Ch. 2.63 in its entirety to read as herein set out. Former Ch. 2.63 §§ 2.63.010—2.63.110, pertained to similar subject matter, and derived from: Ord. C-6961 § 1 (part), 1992; Ord. C-6971 § 1, 1992; Ord. C-7521 § 1, 1998; Ord. C-7760 § 1, 2001; Ord. C-7836 § 1, 2002; ORD-05-0026 § 1, 2005; and ORD-09-0003 § 1, 2009.

Note—Prior ordinance history: Ordinance C-6624.

ness entity who applies for a certificate of appropriateness in order to undertake any modification to property subject to this Chapter.

C. "Archaeology" or "archeology" means the scientific study of the remains of past people and cultures as may be evidenced by artifacts, sites, implements, inscriptions, relics, etc.

D. "Certificate of appropriateness" means a written authorization issued pursuant to this Chapter to accomplish any modification to a Landmark or property within a Landmark District.

E. "City" means the City of Long Beach.

F. "Contributing Property" means a property within a Landmark District that was present during the period of significance and retains its integrity.

G. "Cultural resource" means district, building, structure, natural feature, work of art, sign or other similar objects having a special historical, cultural, archaeological, architectural or aesthetic value.

H. "Days" means consecutive calendar days unless otherwise specified.

I. "Director of Development Services" means the Director of the Development Services Department or his or her designee.

J. "Façade Easement" means a voluntary legal agreement between a property owner and qualified organization to protect a significant cultural resource.

K. "Improvement" means any building, structure, work of art, sign or similar object constituting a physical addition to real property or any part of such addition.

L. "Integrity" means the ability of the cultural resource to convey its significance, defined by a combination of the following qualities: location, design, setting, materials, workmanship, feeling and association.

M. "Landmark" means any property or improvement, manmade or natural, that has special historical, cultural, archeological, architectural or aesthetic value as part of the heritage of the City, State, or United States and has been designated as a Landmark pursuant to the provisions of this Chapter.

N. "Landmark District" means any grouping of related properties that has a special historical, cultural, archeological, architectural or aesthetic value as part of the heritage of the City, State or United States and has been designated as a Landmark District pursuant to the provisions of this Chapter.

O. "Member" means any member of the Cultural Heritage Commission.

P. "Mills Act" means the program implemented by the City of Long Beach to provide a financial incentive for property owners to undertake restoration, rehabilitation, or maintenance of a Landmark property.

Q. "Modification" means any alteration, demolition, removal, construction, exterior painting, or window replacement, of any improvement or natural feature subject to the provisions of this Chapter.

R. "Natural feature" means any tree, plant life or geological element subject to provisions of this Chapter.

S. "Ordinary repairs and maintenance" means any work done on any improvements or replacement of any part of an improvement for which a building permit is not required by law and where the purpose and effect of such work or replacement is to correct any deterioration, decay or damage to such improvement in order to restore it to original condition prior to the occurrence of such deterioration, decay or damage.

T. "Owner" means the person, persons, association, partnership, corporation or other business entity appearing as the owner of such improvement, natural feature or property on the last equalized assessment roll of the County.

U. "Period of Significance" means the period of time in which the resource achieved significance.

V. "Person" means any individual, association, partnership, firm, corporation, public agency or political division.

W. "Relocation" means moving a building, structure, work of art, sign or similar object from one site to another. (ORD-15-0038 § 1, 2015)

2.63.030 Created—Members.

A. A Cultural Heritage Commission is created by this Chapter whose purpose shall be to recognize, protect and promote the retention, maintenance and use of Landmarks and Landmark Districts in the City in accordance with this Chapter. Said Commission shall consist of seven (7) members who are residents of the City who have manifested a knowledge and interest in the preservation of the City's cultural heritage.

B. Commission members shall be appointed from the disciplines of architecture, urban design, history, architectural history, urban planning, archeology or other historic preservation related disciplines, such as American studies, American civilization, cultural geography or cultural anthropology, to the extent that such professionals are available in the community. Commission membership shall also include lay members who have special interest or concern in, or who have demonstrated competence, experience or knowledge in historic preservation or related disciplines.

C. The term of office and the number of terms of office of the members of the Commission shall be in accordance with and pursuant to the provisions of Chapter 2.18, as the provisions of Chapter 2.18 are presently worded or hereafter amended. (ORD-20-0021 § 3, 2020; ORD-15-0038 § 1, 2015)

2.63.040 Duties.

The Cultural Heritage Commission shall have the following powers and duties:

A. To recommend to the City Council that specific districts, buildings, structures, natural features, works of art, signs or similar objects having a special historical, cultural, archaeological, architectural, or aesthetic value as part of the heritage of the City, be designated as a Landmark or Landmark District;

B. To review any proposed modifications to Landmarks or to a contributing building or structure within a Landmark District, and to issue or deny a certificate of appropriateness thereon;

C. To encourage public interest in the preservation of cultural resources in the City;

D. To compile, maintain and update a local register of Landmarks and Landmark Districts and to publicize and periodically update the City's cultural resource survey;

E. To review and comment for advisory purposes only upon the conduct of land use, housing, redevelopment, public works and other types of planning and programs undertaken by any agency or department of the City, County, State or nation, as they relate to the cultural heritage of the City;

F. Upon authorization of the City Council, coordinate and cooperate with local, County, State and federal governments in pursuit of the Commission's purposes;

G. Subject to the consent of the City Council, recommend acceptance of gifts, grants and facade easement donations consistent with the purposes for which the Commission was established;

H. To make and adopt, and from time to time amend, rules and procedures governing the conduct of its business and provide for the administration of this Chapter consistent with Chapter 2.18 of this Code;

I. To assume whatever responsibilities and duties may be assigned to it by the State under certified local government provisions of the National Historic Preservation Act of 1966, as amended; and

J. To perform any other functions consistent with the purposes herein that may be directed by the City Council. (ORD-15-0038 § 1, 2015)

2.63.050 Criteria for designation of Landmarks and Landmark Districts.

Landmarks. A cultural resource qualifies for designation as a Landmark if it retains integrity and manifests one (1) or more of the following criteria:

A. It is associated with events that have made a significant contribution to the broad patterns of the City's history; or

B. It is associated with the lives of persons significant in the City's past; or

C. It embodies the distinctive characteristics of a type, period or method of construction, or it represents the work of a master or it possesses high artistic values; or

D. It has yielded, or may be likely to yield, information important in prehistory or history.

Landmark Districts. A group of cultural resources qualify for designation as a Landmark District if it retains integrity as a whole and meets the following criteria:

A. The grouping represents a significant and distinguishable entity that is significant within a historic context.

B. A minimum of sixty percent (60%) of the properties within the boundaries of the proposed

landmark district qualify as a contributing property. (ORD-15-0038 § 1, 2015)

2.63.060 Procedures for designation of a Landmark.

The Cultural Heritage Commission may recommend the designation of a Landmark either upon its own nomination or upon nomination by any interested group or individual including the owner or occupant of the property proposed for such designation.

A. Nomination for the designation of a Landmark. Nomination of a resource for Landmark designation shall be submitted to the Development Services Department for review in the manner prescribed in this Section.

1. Nomination application. A nomination shall be filed by submitting a completed application on a form provided by the Development Services Department.

2. Application Fee. A filing fee shall accompany each application in the amount set forth in the fee schedule adopted by the City Council by resolution.

3. Application review. Staff reviews the application for completeness:

a. If the application is deemed incomplete, Staff contacts the applicant for additional information.

b. If the application is deemed complete, Staff:

i. Schedules the nomination for a public hearing on the next available agenda of the Cultural Heritage Commission, but no more than sixty (60) days after the application is deemed complete;

ii. Notifies the affected property owner and the occupants of the property consistent with the City noticing requirements;

iii. Prepares a recommendation report for final action. The report shall include a discussion of the relationship of the proposed Landmark to the General Plan, its effect on the surrounding neighborhood and any other planning or historic preservation considerations that may be relevant to the proposed designation; and

iv. At least thirty (30) days before the date set for a hearing to consider a landmark nomination before the Cultural Heritage Commission, the Director of Development Services shall mail, by certified mail, postage prepaid, notice of the hearing to the affected property owner(s). Such mailing shall include a summary statement of the anticipated impacts and effects of a landmark designation as it relates to the future property and development rights, benefits, and constraints incumbent with a landmark designation. The notice shall also provide the owner the opportunity to meet with staff for further information regarding the designation process. The failure to mail the notice to the property owner or the failure of the property owner to receive the notice shall not affect the validity of any proceedings taken under this Chapter.

B. Review of the Landmark nomination.

1. The Cultural Heritage Commission shall review the nomination at a duly noticed public hearing and make a recommendation to the City Council based upon findings of fact pertaining to the designation criteria in this Chapter.

2. Final action recommending approval or disapproval of a nominated Landmark shall be by a majority vote of the Commission.

3. The City Council shall consider the nomination as soon as practical after receiving the Cultural Heritage Commission′s recommendation, and shall approve by ordinance (in whole or in part) or disapprove the nomination. The ordinance designating a Landmark shall include a description of the particular characteristics that justify the designation; set forth the reasons relative to the designation criteria; and delineate the location and boundaries of the Landmark.

4. Notice of the City Council′s decision shall be sent to the Cultural Heritage Commission, the applicant, and the owner of the subject property.

C. Declaration of a Landmark designation.

1. A certified copy of such ordinance shall be recorded in the Office of the County Recorder by the City Clerk immediately following its effective date. The ordinance to be recorded shall contain a legal description of the property, the date and substance of the designation, a statement explain-

ing that the demolition, alteration or relocation of the property is restricted, and a reference to this Section authorizing the recordation.

2. The property included in the designation ordinance shall upon designation be subject to the controls and standards set forth in this Chapter.

D. Interim protection for properties while nomination is under review. Once a nomination has been deemed complete, and while the Cultural Heritage Commission′s public hearing and the decision by the City Council on their recommendation is pending, no permits for the alteration, demolition or removal of improvements on the property nominated for Landmark status may be issued, provided that the prohibitions shall terminate on the one hundred eighty first day following the application being deemed complete, and provided that, notwithstanding the provisions of this Subsection D, requests for building permits which the Director of Development Services determines will have no adverse effect on the architectural character of the nominated property, and which meets the criteria for approval of certificates of appropriateness and the procedure set forth in Section 2.63.080, may be approved during the pendency of review of the subject nomination.

E. Rescinding or amending a Landmark designation.

1. The procedures for rescinding or amending the designation of a Landmark shall comply with the provisions of Subsections 2.63.060.A through E to designate a Landmark.

2. In rescinding or amending the designation of a Landmark, the Cultural Heritage Commission shall determine if one or more provisions of Subsections 2.a through 2.d, inclusive, of this Section are applicable to the designated Landmark.

a. The information in the Landmark nomination was erroneous and the property is not significant or does not retain its integrity.

b. New information contradicts the information in the Landmark nomination and the property is not significant or does not retain its integrity.

c. The Landmark has been altered since it was designated and no longer retains its integrity.

d. The Landmark has been demolished.

3. Notice of the rescission of or amendment to a designation shall be mailed to the owner of record of the subject property. The City Clerk shall file for removal of the recordation with the Office of the County Recorder. (ORD-15-0038 § 1, 2015)

2.63.070 Procedures for designation of a Landmark District.

The Cultural Heritage Commission may recommend the designation of a Landmark District either upon nomination by a neighborhood group or owner of property in the proposed historic district. Nominations for Landmark Districts are processed as set forth in Subsections A through C of this Section.

A. Nomination for the designation of a Landmark District. Nomination of a resource for Landmark District designation shall be submitted to the Development Services Department for processing as prescribed below.

1. Nomination application. The nomination for a Landmark District shall be filed with the Development Services Department on an application form provided by the Department. The application shall include:

a. A petition that a simple majority of the property owners within the boundaries of the proposed Landmark District support the designation.

b. A map with the boundaries of the proposed Landmark District.

c. Evidence that the proposed Landmark District meets the designation criteria.

2. Application Fee. A filing fee shall accompany each application in the amount set forth in the fee schedule adopted by the City Council by resolution.

3. Application review. Staff reviews the application for completeness.

a. If the application is deemed incomplete, the Staff contacts the applicant for additional information.

b. If the application is deemed complete, the Staff:

i. Conducts a workshop for the affected property owners and the occupants of the properties on Landmark District designation;

ii. Makes a preliminary determination regarding the eligibility of the proposed Landmark District;

iii. If the proposed Landmark District appears to meet the designation criteria in this Chapter, the Director of Development Services authorizes the Staff to prepare a historic resources survey. The survey shall be conducted according to the methodology established by the State Office of Historic Preservation;

iv. Schedules the nomination, including the historic resources survey, for a public hearing on the next available agenda of the Cultural Heritage Commission, but no more than 60 days after the application is deemed complete;

v. Notifies the affected property owners and occupants of the public hearing consistent with City noticing requirements;

vi. Prepares a recommendation report for final action. The report shall include a discussion of the relationship of the proposed Landmark District to the General Plan, its effect on the surrounding neighborhood and any other planning or historic preservation considerations that may be relevant to the proposed designation.

B. Review of Landmark District nomination.

1. Upon completion of the historic resources survey, the Cultural Heritage Commission shall conduct a public hearing to review the nomination and make a recommendation to the City Council based upon findings of fact pertaining to the designation criteria in this Chapter.

2. Final action recommending approval or disapproval of a nominated Landmark District shall be by a majority vote of the Cultural Heritage Commission.

3. Within sixty (60) days of receipt of the Cultural Heritage Commission's recommendation, the City Council shall consider the recommendation at a public hearing, and by ordinance approve (in whole or in part) or disapprove the nomination. The ordinance designating a Landmark District shall include a description of the unifying characteristics that justify the designation; set forth the reasons for the designation relative to the designation criteria; establish the period of significance; delineate the boundaries of the District; and identify the contributing and noncontributing properties.

4. Notice of the City Council's decision shall be sent to the Cultural Heritage Commission, the applicant, and the owners of the properties within the Landmark District.

C. Declaration of Landmark District designation.

1. A certified copy of the ordinance shall be recorded in the Office of the County Recorder by the City Clerk immediately following its effective date. The ordinance to be recorded shall contain a legal description of the subject properties, the date and substance of the designation, a statement explaining that the demolition, alteration or relocation of cultural resources within the Landmark District is restricted, and a reference to this Section authorizing the recordation.

2. The properties included in the designation ordinance shall upon designation be subject to the controls and standards set forth in this Chapter.

D. Interim protection for properties while a nomination is under review. Once a nomination has been deemed complete, and while the Cultural Heritage Commission's public hearing and the decision by the City Council on their recommendation is pending, no permits for the alteration, demolition or removal of improvements on the property nominated for Landmark status may be issued, provided that the prohibitions shall terminate on the one hundred eighty-first day following the application being deemed complete, and provided that, notwithstanding the provisions of this Subsection D, requests for building permits which the Director of Development Services determines will have no adverse effect on the architectural character of the nominated property, and which meets the criteria for approval of certificates of

appropriateness and the procedure set forth in Section 2.63.080, may be approved during the pendency of review of the subject nomination.

E. Rescinding or amending a Landmark District designation.

1. The procedures for rescinding or amending the designation of a Landmark District shall comply with Subsections 2.63.070.A through E.

2. In rescinding or amending the designation of a Landmark District, the Cultural Heritage Commission shall determine if one or more of the provisions of Subsections 2.a through 2.g, inclusive of this Section are applicable:

a. The information in the historic resource survey of the Landmark District was erroneous or the area is not significant and does not retain its integrity.

b. New information contradicts the information in the Landmark District nomination or the area is not significant and does not retain its integrity.

c. The boundaries of the Landmark District should be changed so that a minimum of 60 percent (60%) of the properties within the boundaries qualify as contributing properties.

d. The period of significance of the Landmark District should be changed to accurately reflect the reasons that justified its designation.

e. A property has been altered since it was designated and no longer retains its integrity. Therefore the status of the property should be changed from contributing to noncontributing.

f. The historic character of a property has been restored since it was designated. Therefore the status should be changed from noncontributing to contributing.

g. A contributing property has been demolished. Therefore the status of that structure should be changed to noncontributing.

3. Notice of the rescission of or amendment to a designation shall be mailed to the owner of record of the subject property. The City Clerk shall file for the revision of the ordinance recorded with the Office of the County Recorder.
(ORD-15-0038 § 1, 2015)

2.63.080 Procedures for certificate of appropriateness.

A. No person owning, renting or occupying property that has been designated a Landmark or situated in a Landmark District, shall make any modification to such property unless a certificate of appropriateness has been issued authorizing such modification. All modifications made to Landmarks or properties within Landmark Districts require a certificate of appropriateness whether or not the alteration, demolition, removal or construction of such property requires a City permit.

B. The Cultural Heritage Commission shall be responsible for considering and issuing certificates of appropriateness for substantial alterations made to City designated Landmarks or to contributing structures, buildings or sites within a Landmark District. For the purpose of this Section, ″substantial alterations″ shall mean an alteration that jeopardizes a structure′s individual eligibility as a City designated landmark or as a contributing structure on the National Register of Historic Places, or its status as a contributing structure within a Landmark District, or the California Register of Historical Resources, such as, but not limited to:

1. The addition, removal, alteration or substitution of defining architectural features, such that the building or structure is incapable of yielding important historical information about its period, including changes to the exterior siding (unless siding is replaced with siding of similar size and appearance), roof pitch, fenestration and the compatibility of additions in terms of general scale, massing, and materials.

2. Isolation of a property or alteration of its setting such that the historic character and integrity are no longer reflected in the site. Examples may include the introduction of parking lots, removal of subsidiary buildings, or relocation of a structure from its original site.

3. Use of surface cleaning or maintenance methods which endanger the building, structure, or object′s historic building materials, such as sandblasting and improper masonry repointing.

The Director of Development Services shall be responsible for considering and issuing certificates of appropriateness within Landmark Districts in all other instances, including, but not limited to, the replacement of windows and doors (including screen doors) with like materials (e.g., wood window changed with wood or wood-clad window of similar aesthetics); replacement or repair of siding similar in size and appearance; replacement or repair of a porch or primary entry to the building or structure; replacement or repair of garage doors that are visible from the public right-of-way; or installation or repair of rain gutters.

C. An applicant for a certificate of appropriateness shall file an application with the Cultural Heritage Commission or Director of Development Services, as appropriate. The application shall contain all facts and information necessary to properly consider the matter. The applicant shall also pay such fee as is established by resolution of the City Council.

D. The Cultural Heritage Commission or, as appropriate, the Director of Development Services, shall only issue a certificate of appropriateness if it is determined that the proposed modification:

1. Will not adversely affect any significant historical, cultural, architectural or aesthetic feature of the Landmark or subject property within the Landmark District and that issuance of the certificate of appropriateness is consistent with the spirit and intent of this Chapter.

2. Will remedy any condition determined to be imminently dangerous or unsafe by the Fire Marshal and/or Building Official.

3. Will comply with the Secretary of the Interior's Standards for the Treatment of Historic Properties and Guidelines for Preserving, Rehabilitating, Restoring, and Reconstructing Historic Buildings.

4. Will comply with the Design Guidelines for Landmark Districts, for a property located within a Landmark District.

E. If the Cultural Heritage Commission or, if authorized, the Director of Development Services determines that the proposed modification will adversely affect any significant historical, cultural, architectural or aesthetic feature of the Landmark or concerned property within a Landmark District, the certificate of appropriateness shall be denied. If the Commission or the Director of Development Services finds that the adverse effects can be overcome by minor modifications to the application, a certificate of appropriateness with conditions may be issued.

F. Once a certificate of appropriateness is issued, the applicant may proceed with the proposed modification, provided all other requirements of the City are met.

G. The California State Historical Building Code, which is set forth in Sections 18950 to 18961, incusive, of Division 13, Part 2.7 of the Health and Safety Code, shall be used for any Landmark or contributing property within a Landmark District through the City's building permit procedure.

H. The provisions of this Section shall not be construed so as to prevent the ordinary maintenance and repair of any exterior feature of a Landmark or property within a Landmark District; or to prevent the construction, reconstruction, alteration, restoration or demolition of any feature which is necessary to remedy an immediately unsafe or dangerous condition as determined by the Fire Department and/or Building Official excluding orders issued pursuant to Chapter 18.68 of this Code. In such cases, the work must be approved by the Director of Development Services, and no certificate of appropriateness shall be required.

The Director of Development Services shall determine whether or not the proposed work, alteration, construction or improvement constitutes ordinary maintenance and repair and is therefore exempt from the certificate of appropriateness requirement established by this Chapter.

I. Notwithstanding any other provision of this Chapter, a certificate of appropriateness shall become void unless construction relating to the approved modification is commenced within thirty-six (36) months of the date of issuance. Certificates of appropriateness may be renewed for an addi-

tional twelve (12) month period by applying to the Cultural Heritage Commission staff or to the Director of Development Services.

If the approved modification is not completed within twelve (12) months after the expiration of the last building permit, a new certificate of appropriateness shall be required.

J. Any Certificate of Appropriateness approved between January 1, 2019 and the effective date of this ordinance shall be effective for a period of thirty-six (36) months from the date of issuance, at which time it will expire and be of no force or effect. (ORD-20-0022 §§ 1, 3, 2020; ORD-15-0038 § 1, 2015)

2.63.090 Hearings and determinations.

All hearings conducted by the Cultural Heritage Commission and determinations by the Director of Development Services shall be conducted in accordance with the provisions of this Chapter and in the following manner:

A. For public hearings to be conducted by the Cultural Heritage Commission, notice shall be consistent with current City noticing requirements set forth in Section 21.21.302.

B. The Director of Development Services shall consider all applications for certificates of appropriateness within his/her jurisdiction as set forth in Section 2.63.080. Determinations shall be made within forty-five (45) days after the applicant has submitted an application and the Director determines it to be complete. The Director has authority to approve, conditionally approve or deny an application. Determinations made pursuant to this Subsection shall not require a formal hearing or notice. In making his/her determination the Director shall make written findings in accordance with the criteria set forth in Subsections 2.63.080.D and E. Determinations made by the Director of Development Services may be appealed by the Applicant to the Cultural Heritage Commission. In the case of such appeal, the procedures set forth in Section 2.63.100 ("Appeals") shall apply. Rather than act on an application for a certificate of appropriateness within his/her jurisdiction, the Director of Development Services may, in his/her sole discretion, refer the application to the Cultural Heritage Commission for its determination. In such case the procedures set forth in Subsection 2.63.090.A shall apply.

C. After considering all of the testimony and evidence submitted, the Cultural Heritage Commission shall render its decision. The decision shall be in writing and shall include findings of fact, a summary of the relevant evidence and a statement of issues. A copy of the decision shall be provided to the applicant and to any other person who has requested it. All hearings shall be conducted and decisions rendered no later than ninety (90) days from the date that an application has been deemed complete by the Director of Development Services. (ORD-15-0038 § 1, 2015)

2.63.100 Appeals.

Any person aggrieved by the denial or approval of a certificate of appropriateness may appeal such denial or approval in the following manner:

A. The appellant may file a notice of appeal, in writing, with the Department of Development Services within ten (10) calendar days after issuance of the written decision to deny or approve the application for a certificate of appropriateness. The appeal shall be filed on a form prescribed by the Development Services Department and accompanied by payment of the appeal fee as established by resolution of the City Council. The appeal shall, in the case of a decision of the Cultural Heritage Commission, be heard by the Planning Commission, or in the case of a determination by the Director of Development Services, by the Cultural Heritage Commission. The appeal hearing shall be conducted no later than forty-five (45) days after the notice of appeal has been filed and deemed complete. Notice of the appeal hearing shall be provided to the appellant, the applicant, and to any person who has requested in writing that such notice be provided. Notice of the appeal hearing shall also be posted at the subject site at least fourteen (14) days prior to the hearing in a form and manner deemed appropriate by the Director of Development Services.

B. The appeal body may affirm, reverse or modify the action of the Cultural Heritage Commission or the Director of Development Services and may affix whatever conditions of approval as it deems reasonably necessary.

C. The decision of the Cultural Heritage Commission or the Planning Commission on appeal shall be final. Pursuant to California Code of Civil Procedure Section 1094.6, the time within which to seek judicial review of the final decision is ninety (90) days after the date the decision becomes final. The decision becomes final as of the date the appeal hearing is conducted and a decision is rendered. (ORD-15-0038 § 1, 2015)

2.63.110 Easements and development rights.

This Chapter shall empower the City to acquire facade easements or development rights to Landmarks or contributing properties within a Landmark District, through purchase, donation or condemnation. The easement or development rights shall be designed to run with the land in order to preserve or maintain the significant features of the subject property. (ORD-15-0038 § 1, 2015)

2.63.120 Penalties.

A. Any person who knowingly violates a requirement of this Chapter or who knowingly fails to obey a lawful order issued by the Cultural Heritage Commission or the Director of Development Services, or to comply with a condition of approval of any certificate or permit issued under this Chapter shall be guilty of a misdemeanor and be subject to provisions of Section 1.32.010 of this Code.

B. Any person who constructs, alters, removes or demolishes a designated Landmark or contributing property within a designated Landmark District in violation of this Chapter shall be required to restore the building, object, site or structure to its appearance or setting prior to the violation. Any action to enforce this provision may be brought by the City or any other interested party. The civil remedy may be in addition to, and not in lieu of, any criminal prosecution and or administrative penalty or other remedy provided by law.

C. Any person who constructs, alters, removes or demolishes a designated Landmark or contributing property within a designated Landmark District in violation of this Chapter may be subject to an administrative citation for each violation in accordance with Chapter 9.65 of this Code. As part of any enforcement proceeding, violators may be required to restore the building, object, site or structure to its appearance or setting prior to the violation.

D. Every Landmark or contributing property within a Landmark District shall be maintained in good repair by the owner or person who is legally responsible for the property in order to prevent its deterioration or decay. (ORD-15-0038 § 1, 2015)

2.63.130 Incentives for preserving cultural resources.

Preservation incentives shall be made available to owners of properties that are Landmarks or contributing to a Landmark District, as appropriate, through:

A. Variances for height or setbacks consistent with existing structures.

B. Waivers from requirements for covered parking or parking spaces.

C. Mills Act Historic Property Contracts.

D. Adaptive Reuse Ordinance.

E. Building permits issued under the California State Historical Building Code. (ORD-15-0038 § 1, 2015)

CHAPTER 2.66 RESERVED*

CHAPTER 2.69 CIVIL DEFENSE†

2.69.010 Purpose.

The declared purposes of this Chapter are to provide for the preparation and carrying out within

***Editor's note**—ORD-17-0001 § 1, adopted Feb. 14, 2017, repealed Ch. 2.66 §§ 2.66.010—2.66.080 entitled "Redevelopment Agency", which derived from Prior code §§ 2360—2360.7; Ord. C-7628 § 1, 1999; and Ord. C-7865 § 1, 2003.

†**State law reference**—Provisions pertaining to local disaster councils, Gov. Code § 8610 et seq.

this City of plans for the protection of persons and property in the event of a disaster, and to provide for the coordination of the emergency planning and disaster functions of this City with all other public agencies and affected private persons, corporations and organizations. (Prior code § 2350)

2.69.020 Emergency defined.

As used in this Chapter, "emergency" means the actual or threatened existence of conditions of disaster or of extreme peril to the safety of persons and property within this City caused by such conditions as air pollution, fire, flood, storm, epidemic, riot, or earthquake, or other conditions, including conditions resulting from war or imminent threat of war, but other than conditions resulting from a labor controversy, which conditions are or are likely to be beyond the control of the services, personnel, equipment, and facilities of this City, requiring the combined forces of other political subdivisions to combat. (Prior code § 2350.1)

2.69.030 Emergency Council—Members.

The Emergency Council is created and its membership shall consist of the following:

A. The Mayor, who shall be Chairman;

B. The City Manager, who shall be Vice-Chairman;

C. The Coordinator of Emergency Services, who shall be the Executive Secretary;

D. The City Attorney or his representative;

E. Such Deputy Directors and Chiefs of Emergency Services appointed pursuant to this Chapter;

F. Such other representatives of civic, business, labor, veterans, professional, or other organizations within the community as may be appointed by the City Manager with the approval of the City Council, however, not to exceed five (5) in number. (Prior code § 2350.2)

2.69.040 Emergency Council—Duties.

It shall be the duty of the Emergency Council, and it is empowered, to review and recommend for adoption by the City Council, emergency and mutual aid plans and agreements and such ordinances and resolutions and rules and regulations as are necessary to implement such plans and agreements. The Emergency Council shall meet upon call of the Chairman, or with his consent or in his absence from the City or inability to call such meeting, upon the call of the Vice-Chairman. (Prior code § 2350.3)

2.69.050 Emergency Council—Responsibilities.

The City Emergency Council shall be responsible for:

A. Periodically reviewing the City emergency plan, which shall consist of a basic plan and separate annexes for each of the emergency services and special emergency situations when the Director deems appropriate. The plan shall provide for the effective mobilization of all of the resources of this City, both public and private, to meet any condition constituting a local emergency, state of emergency, or state of war emergency. The Emergency Council shall assure that the plan is consistent with this Chapter and appropriately provides for the organization, powers and duties, services, and staff as required for maximum effectiveness of the emergency organization. The basic portion of the plan shall take effect upon adoption by resolution of the City Council. Each annex shall be consistent with the adopted basic plan and take effect upon written approval of the Director.

B. Assignment of emergency duties and functions shall be set forth in the basic plan for City agencies and employees.

C. Amendments to the basic plan shall be placed on file with the City Council by the Director. Such amendments shall become effective thirty (30) days from the date of filing unless action is taken by the City Council during one of its regular or special sessions disapproving the Director's submission. In event an amendment is pending at the time that an emergency is proclaimed under provision of Subsections B.1 or B.2 of Section 2.69.060, the amendment will be considered approved immediately and will remain effective unless specifically revoked by the City Council at a later date.

D. In assigning emergency duties and functions to City agencies and personnel, the Director shall place such responsibilities to best utilize the inherent competencies already existing in the governmental structure. When the requisite competency for a function is not available within the City government, the Director is authorized to seek assistance on a volunteer basis from persons outside of government. The assignment of duties, when of a supervisory nature, shall also grant authority for the persons so assigned to carry out such duties prior to, during, and after the occurrence of a disaster.

E. The provisions of the basic plan, as filed with and approved by the City Council, shall be mandatory upon the agencies of City government and its employees, who shall diligently apply their efforts toward the development of the most effective disaster preparedness program within their means. The basic plan shall be considered supplementary to this Chapter and have the effect of law whenever an emergency, as provided in this Chapter, has been proclaimed. (Prior code § 2350.6)

2.69.060 Director—Duties.

A. There is created the position of Director of Civil Defense. This position shall be filled by the City Manager. The title of Director of Emergency Services is coterminous and equally applicable.

B. The Director is empowered to:

1. Request the City Council to proclaim the existence or threatened existence of a local emergency and the termination thereof, if the Council is in session, or issue such proclamation, if the Council is not in session; provided, however, in the event that such proclamation is by the Director alone the City Council shall take action to ratify the proclamation within seven (7) days thereafter or the proclamation shall have no further force or effect. The City Council shall review at least every fourteen (14) days the need for continuing a local emergency, and shall terminate it at the earliest possible date the conditions warrant. The City Council may extend the fourteen (14) day review period for continuing a local emergency for any existing local emergency by minute order for a time period in compliance with state law requirements;

2. Request the Governor of the State to proclaim a state of emergency when, in the opinion of the Director, the locally available resources are inadequate to cope with the emergency;

3. Control and direct the efforts of the emergency organization of this City for the accomplishment of the purposes of this Chapter;

4. Direct cooperation between and coordination of the services and staff of the emergency organization of this City and resolve questions of authority and responsibility that may arise between them;

5. Represent the emergency organization of this City in all dealings with public or private agencies pertaining to emergencies as defined in this Chapter;

6. Appoint, with the consent of the City Council, and assistant Director of Civil Defense who, under his direction, shall also be known as the Coordinator of Emergency Services and be in charge of the Department of Emergency Preparedness;

7. Prepare and maintain, on a current basis, a disaster plan to be known as the City Emergency Plan. A portion of the Plan, referred to in the remainder of this Chapter as the basic plan, shall be effective upon approval of the City Council and shall be as more particularly described in this Chapter. (ORD-23-0024 § 1, 2023; Prior code § 2350.4)

2.69.070 Director—Emergency powers.

In the event of the proclamation of a local emergency as provided in this Chapter, the proclamation of a state of emergency by the Governor or the State Director of the Office of Emergency Services, or by the President of the United States, the Director is empowered, within limitations provided by the City Charter, ordinances and laws applicable to the City:

A. To make, issue, and enforce rules and regulations on matters reasonably related to the protection of life and property as affected by such

emergency; provided, however, such rules and regulations must be confirmed at the earliest practicable time by the City Council;

B. To obtain vital services, supplies, equipment and such other properties found lacking and needed for the protection of the life and property of the people, and bind the City for the fair value thereof;

C. To require emergency services of any City officer or employee, and, in the event of the proclamation of a state of emergency in the County in which this City is located or the existence of a state of war emergency, to command the aid of as many citizens of this community as he deems necessary in the execution of his duties; such persons shall be entitled to all privileges, benefits, and immunities as are provided in State law for registered emergency service workers;

D. To requisition necessary personnel or material of any City department or agency;

E. To exercise all of his ordinary powers as City Manager, all of the special powers conferred upon him by this Chapter or by the Emergency Plan adopted pursuant thereto, all powers conferred upon him by any statute, agreement approved by the City Council, or by any other lawful authority;

F. To designate the order of succession to his office, to take effect in the event that he is unavailable to attend meetings and otherwise perform his duties during an emergency. Such order of succession shall be approved by the City Council;

G. To provide general supervision to the assistant Director, who, with the assistance of the Chiefs of the Emergency Services, shall develop an Emergency Plan and manage the emergency programs of this City, and who shall have such other powers and duties as may be assigned by the Director. (Prior code § 2350.5)

2.69.080 Emergency organization.

A. All officers and employees of this City, together with those volunteer forces enrolled to aid them during an emergency, and all groups, organizations, and persons who may by agreement or operation of law, including persons impressed into service under the provisions of Subsections 2.69.070.A and 2.69.070.C and charged with duties incident to the protection of life and property in this City during such emergency, shall constitute the emergency organization of the City.

B. Each service Chief appointed by the Director shall be responsible for carrying out all duties and functions assigned in the basic plan and in the annex pertaining to his service. Duties will include the organization and trainof assigned City employees and volunteers. Each Chief, with the guidance and assistance of the assistant Director, shall formulate the operational plan for his service which, when approved by the Director, shall become an annex to the basic plan. The Chiefs shall be responsible for the care, maintenance and proper use of any special equipment and/or property which they may obtain or that might be assigned to them from time to time by the Director.

C. The Director shall prescribe those positions within the emergency organization for which lines of succession are necessary. In each instance, the responsible person will designate and keep on file with the Director a current list of three (3) persons as successors to his position. The list will be in order of succession and the person responsible will only designate persons capable of carrying out all assigned duties and functions. (Prior code § 2350.7)

2.69.090 American Red Cross duties.

A. The American Red Cross in the City shall, in time of emergency, make assistance available to needy individuals and families as provided for in its National Charter and subsequent agreements with the federal government.

B. The Director shall be responsible for arranging, through the Manager of the local Red Cross Chapter, for the participation of the Red Cross in the City's emergency organization as a

part of the mass care service in case of war-caused emergency, and for the relationship between the Red Cross and the emergency organization in case of natural disaster. (Prior code § 2350.8)

2.69.100 Expenditures.

Any expenditures made in connection with emergency activities, including mutual aid activities, shall be deemed conclusively to be for the direct protection and benefit of the inhabitants and property of the City. (Prior code § 2350.9)

2.69.110 Violations.

No person shall:

A. Wilfully obstruct, hinder, or delay any member of the civil defense and emergency organization in the enforcement of any lawful rule or regulation issued pursuant to this Chapter, or in the performance of any duty imposed upon him by virtue of this Chapter;

B. Do any act in violation of any emergency declaration or curfew established by any lawful rule, regulation, order or directive issued pursuant to this Chapter;

C. Wear, carry or display, without authority, any means of identification specified by the civil defense and emergency agency of the State or of the City. (Ord. C-7670 § 1, 2000; prior code § 2350.10)

CHAPTER 2.72 EQUAL OPPORTUNITY CONTRACT COMPLIANCE PROGRAM

2.72.010 Purpose.

The purpose of this Chapter is to obligate those contractors who contract with the City to comply with nondiscrimination and equal opportunity provisions of laws rules and regulations of the United States, the State and the City, except as provided in this Chapter. It shall obligate contractors to take affirmative action to insure the provision of equal opportunity in certain contracts. Appropriate provisions shall be incorporated into all contracts to accomplish this purpose. (Ord. C-5315 § 1, 1977: prior code § 2800)

2.72.020 Applicability.

Unless exempted, excepted or otherwise excused by law, no person, firm or corporation that contracts with the City to provide services or supplies shall be paid any public funds or other consideration, whether such service or supplies are delivered or not, unless such person, firm or corporation complies with the equal opportunity provisions of federal, State and City laws, rules and regulations and has filed such plan with the equal opportunity compliance officer of this City, an affirmative action plan, an employment action plan or equal service certification (standard or devised according to stated standards) as may be applicable and such plan has been approved by the equal opportunity compliance officer. An affirmative action plan previously accepted by a federal compliance agency will be considered acceptable for the requirements under Section 2.72.060. (Ord. C-5315 § 1 (part), 1977: prior code § 2801)

2.72.030 Definitions.

The following words and phrases shall be construed as defined in this Section unless from the context a different meaning is indicated and more particularly directed to use of such words and phrases:

"Affirmative action" means the taking of positive steps by the contractor or subcontractor to insure that its practices and procedures promote and effectuate employment retention and advancement of a particular class or category of persons generally described by race, color, religion, sex, ancestry, national origin, age and handicap. The action may involve the concept, when applicable of remedying the continuing effects of past discrimination.

"Affirmative action plan" means a written statement executed by the contractor which declares the contractor's policy for equal opportunity and affirmative action practices and is signed by an authorized managing official of the contractor. The plan declares the means and method of policy implementation and identifies the management level person responsible for the implementation of the plan. It contains a work force analysis of the

race, ethnic, and sex grouping of persons within the contractor's work force by Equal Employment Opportunity -1 (EEO-1) job categories as designated by the Equal Employment Opportunity Commission and the Office of Federal Contract Compliance Programs. Minorities are defined for this purpose as persons of the following racial and ethnic groups: Black (negroes), Hispanic (including persons of Mexican, Puerto Rican, Cuban, Central or South American, or other Spanish origin or culture regardless of race), Asians (including Pacific Islanders), American Indians (including Alaskan natives). It contains a utilization analysis as a comparison between the contractor's work force and the labor market availability (see definition under this Section).

It declares the contractor's goals and timetables for eliminating deficiencies as indicated by the utilization analysis. It further declares the corrective action measures as affirmative steps the contractor will take to meet established goals.

"Contract" means any agreement, franchise or lease, including agreements for any occasional professional or technical personal services for the performance of any work or service, the provision of any material or supplies or the rendition of any service to or for the City, which is let, awarded or entered into with or on behalf of the City.

"Contractor" means any person, firm, corporation, or any combination thereof, which submits a bid or enters into any contract with the City.

"Employment action plan" means a written statement executed by the contractor which declares the contractor's policy and the assignment of responsibility to a top management person to implement the plan to hire unemployed residents of Long Beach in the performance of the contract. It further declares a numerical goal of employed residents by job classification which the contractor will employ and the steps the contractor will take to achieve the goal.

"Employment practices" means any practice involving the recruitment of applicants, the selection of employees, the training of employees, the compensation of employees directly or indirectly, the promotion, demotion, layoff, suspension, termination of employees, or any other practice relating to employees in their work-related activities.

"Equal opportunity" means that opportunity which must be extended to all persons to participate in all activities, employment, programs or services in like proportions to their representation in the labor market or service area, as applicable.

"Equal service certification" means a written statement executed by the contractor in which the contractor certifies and agrees that he or she will not discriminate against any person in the provision of any service activity or in any program funded in whole or in part by the City, because of race, color, religion, national origin, ancestry, sex, gender identity, age or handicap, except where such exclusion is a bona fide service activity or programmatic necessity.

"Labor market availability" means the total recorded number of persons who are employed or unemployed and seeking work within the Standard Metropolitan Statistical Area (S.M.S.A.) as defined in the Department of Commerce, Bureau of Budget Publication, "Standard Metropolitan Statistical Areas," 1967, U.S. Government Printing Office, Washington, D.C. 20402, and which is applicable to the contractor's work force.

"Service activity" means any program or activity which promotes the City as a creative, active and socially responsive community.

"Subcontractor" means any person, firm, corporation or any combination thereof, which enters into a contract with a contractor to perform or provide a portion or part of any contract with the City. (ORD-08-0016 § 1, 2008: Ord. C-5315 § 1 (part), 1977: prior code § 2802)

2.72.040 Nondiscrimination clause required.

Every contract awarded by the City and every subcontract let by the contractor of the City shall contain the following clause:

"The contractor and subcontractor agree that they will not discriminate against any person in the performance of the contract and will comply with applicable federal, State and City of Long

Beach, Equal Opportunity Laws, Rules and Regulations". (Ord. C-5315 § 1 (part), 1977: prior code § 2803)

2.72.050 Construction contracts for ten thousand dollars or more.

Every construction contract awarded by the City for the total amount of ten thousand dollars ($10,000.00) or more, and every subcontract let by the contractor of the City in those cases, shall require the contractor and any subcontractor to submit to the equal opportunity compliance officer of the City for approval prior to award of the contract an acceptable affirmative action plan. The contract shall further require the contractor to comply with the plan. (Ord. C-5315 § 1 (part), 1977: prior code § 2804)

2.72.060 Nonconstruction contracts for twenty thousand dollars or more.

Every nonconstruction contract awarded by the City for the total amount of twenty thousand dollars ($20,000.00) or more, and every subcontract let by the contractor of the City in those cases, shall require the contractor and any subcontractor to submit to the equal opportunity compliance officer of the City for approval prior to award of the contract an acceptable affirmative action plan or employment action plan or equal service certification, whichever is applicable to the contract, in accordance with the following provisions:

A. Contractors or subcontractors having a business location within the City and fifteen (15) or more employees shall submit an acceptable affirmative action plan which utilizes the combined Los Angeles and Orange Counties S.M.S.A.s to determine its labor market availability;

B. Contractors or subcontractors having a business location within Los Angeles or Orange County, except within Long Beach, and having fifty (50) or more employees shall submit an acceptable affirmative action plan or an acceptable employment action plan;

C. Contractors or subcontractors having a business location outside Los Angeles or Orange County and having fifty (50) or more employees shall submit an acceptable affirmative action plan;

D. Contractors or subcontractors who perform a personal service and who employ five (5) or more persons shall submit an acceptable affirmative action plan; and

E. Contractors or subcontractors who perform the requirements of a contract by members and directors of an organization and not with employees shall submit an acceptable equal service certification.

The contract shall further require that all contractors comply with their approved plans. (Ord. C-5315 § 1 (part), 1977: prior code § 2805)

2.72.070 Contractor records.

Contractors and subcontractors shall maintain such records and shall make such records available in such form and at such times as the equal opportunity compliance officer of the City shall reasonably require to determine compliance with the equal opportunity obligations of the contract. Contractors and subcontractors shall further provide reasonable access to job sites or business locations upon request of the equal opportunity compliance officer. (Ord. C-5315 § 1 (part), 1977: prior code § 2806)

2.72.080 Compliance and enforcement.

A. Contractors and subcontractors who achieve the goals of their respective affirmative action plans or employment action plans may be presumed to be in compliance with the equal opportunity affirmative action provisions of the contract. Contractors and subcontractors who fail to achieve their goals shall be evaluated for the corrective action measures taken to achieve such goals. Such corrective action measures shall include, but not be limited to:

1. Notifying community organizations, news media and schools which are likely to yield applicants from groups who are underrepresented (i.e., minorities and females) in the contractor's work force of all available employment opportunities:

2. Maintaining a file of names and addresses of each employment application from any underrepresented group for continued placement followup;

3. Encouraging present employees to recruit applicants from underrepresented groups;

4. Providing where feasible after school, summer and vacation employment for persons of underrepresented groups;

5. Assuring that all personnel recruitment, selection and evaluation devices or procedures do not adversely affect or illegally discriminate against underrepresented groups;

6. Developing or participating in training programs designed to increase the employability of underrepresented groups;

7. Assuring that all activities, practices, and programs of the contracting entity do not illegally discriminate against or adversely affect underrepresented groups;

8. Monitoring and evaluating affirmative action plan activities to assure compliance with the equal opportunity policy;

9. Soliciting bids for subcontracting from minority and female subcontractors.

B. Contractors who do not achieve their goals, who fail to take at least the corrective actions indicated above, and who fail to submit timely documentation and reports are not in compliance with the equal opportunity provisions of the contract. Such failure shall be deemed to be a material breach of the contract. The equal opportunity compliance officer shall make such determinations of compliance and shall notify the awarding authority of such noncompliance and recommend appropriate sanctions. (Ord. C-5315 § 1 (part), 1977: prior code § 2807)

2.72.090 Noncompliance sanctions.

Contractors and subcontractors who fail to comply shall be given an opportunity to be heard by the awarding authority or their designates. The equal opportunity compliance officer shall be notified by the awarding authority and may attend and be heard at any hearing for this purpose before the imposition of any penalties or sanctions. However, if after such hearing the contractor or subcontractor remains in a status of noncompliance, the awarding authority may seek sanctions according to law including but not limited to: (A) the withholding of payment; (B) suspension of the contract; (C) termination of the contract in whole or in part; (D) declaring the contractor a nonresponsive bidder or other appropriate sanctions. The City may in addition retain all moneys due or to become due on the contract. Contractors and subcontractors found to be nonresponsive shall be disqualified from being awarded a City contract for a period of five (5) years or until the contractor can demonstrate to the equal opportunity compliance officer that he is complying with the equal opportunity provisions of this Chapter. (Ord. C-5315 § 1 (part), 1977: prior code § 2808)

2.72.100 Appeals.

Contractors may appeal the imposition of sanctions under this Chapter to the City Council. Any such appeal shall be filed with the City Clerk no later than ten (10) days following the decision of the awarding authority. (Ord. C-5315 § 1 (part), 1977: prior code § 2809)

2.72.110 Implementing rules and regulations.

The Affirmative Action Office of the City shall promulgate the rules, regulations and forms for implementing the nondiscrimination, equal opportunity and affirmative action provisions of this Chapter. So far as practicable such rules and regulations shall be similar to those adopted under applicable federal executive orders. (Ord. C-5315 § 1 (part), 1977: prior code § 2810)

2.72.120 Notice to contractors of requirements.

A. Contractual proceedings where such notice inviting bids is being published pursuant to the City Charter shall specify that the provisions of Sections 2.72.010 through 2.72.130 are applicable to any contract awarded.

B. When a notice inviting bids is not published, the contractor shall be advised at the outset of negotiations that the provisions of Sections 2.72.010 through 2.72.130 will be a part of any contract entered into by the City as a result of such negotiations. (Ord. C-5315 § 1 (part), 1977: prior code § 2811)

2.72.130 Exemptions.

Exempt from the provisions of this Chapter are:

A. Contracts with other governmental jurisdictions;

B. Contracts with manufacturers located outside the continental United States;

C. Contracts with sole source suppliers of goods and services; and

D. Contracts resultant from emergencies where the general welfare is at stake. (Ord. C-5315 § 1 (part), 1980: prior code § 2812)

CHAPTER 2.73 EQUAL BENEFITS TO EMPLOYEES OF CITY CONTRACTORS

2.73.010 Title and purpose.

This Chapter shall be known as the "Long Beach Equal Benefits Ordinance". The purpose of this Chapter is to protect the public health, safety and welfare by requiring that public funds be expended in such a manner as to prohibit discrimination in the provision of employee benefits by City contractors between employees with spouses and employees with domestic partners, and/or between domestic partners and spouses of such employees.
(ORD-09-0036, § 1, 2009)

2.73.020 Definitions.

A. "Contractor" shall mean any person or persons, firm, partnership, corporation, or combination thereof, who enters into a contract with the City.

B. "Domestic partner" shall mean any person who has a currently registered domestic partnership with a governmental body pursuant to State or local law authorizing such registration or with his or her employer or his or her domestic partner's employer.

C. "Nonprofit" shall mean a nonprofit organization described in Section 501(c)(3) of the Internal Revenue Code of 1954, which is exempt from taxation under Section 501(c)(3) of that Code, or any nonprofit educational organization qualified under Section 23701(d) of the Revenue and Taxation Code.
(ORD-09-0036, § 1, 2009)

2.73.030 Contractors subject to requirements.

A. The following contractors are subject to this Chapter:

1. For-profit entities which enter into an agreement with the City for public works or improvements to be performed, or for goods or services to be purchased, for an amount of one hundred thousand dollars ($100,000.00) or more; and

2. For-profit entities which generate three hundred fifty thousand dollars ($350,000.00) or more in annual gross receipts and which occupy City property pursuant to a written agreement for the exclusive use or occupancy of said property for a term exceeding twenty-nine (29) days in any calendar year.

B. The requirements of this Chapter shall only apply to those portions of a contractor's operations that occur: (i) within the City; (ii) on real property outside the City if the property is owned by the City or if the City has a right to occupy the property, and if the contractor's presence at that location is connected to a contract with the City; and (iii) elsewhere in the United States where work related to a City contract is being performed. The requirements of this Chapter shall not apply to subcontracts or subcontractors of any contract or contractor.

C. The City Manager or designee will provide a report to the City Council regarding the implementation of the ordinance from which this Chapter derives no later than one (1) year following the effective date of the ordinance, and will consider among other items, whether the dollar thresholds set forth in Subsections A. and B. should be modified.
(ORD-09-0036, § 1, 2009)

2.73.040 Nondiscrimination in provision of benefits.

A. No contractor subject to this Chapter pursuant to Section 2.73.030, shall discriminate in the

provision of bereavement leave, family medical leave, health benefits, membership or membership discounts, moving expenses, pensions and retirement benefits or travel benefits or in the provision of any benefits other than bereavement leave, family medical leave, health benefits, membership or membership discounts, moving expenses, pensions and retirement benefits or travel benefits between employees with domestic partners and employees with spouses, and/or between the domestic partners and spouses of such employees except as set forth in Subsections A.1. and 2. below:

1. In the event that the contractor's actual cost of providing a particular benefit for the domestic partner of an employee exceeds that of providing it for the spouse of an employee, or the contractor's actual cost of providing a particular benefit for the spouse of an employee exceeds that of providing it for the domestic partner of an employee, the contractor shall not be deemed to discriminate in the provision of employee benefits if the contractor conditions providing such benefit upon the employee agreeing to pay the excess costs.

2. The contractor shall not be deemed to discriminate in the provision of employee benefits if, despite taking reasonable measure to do so, the contractor is unable to extend a particular employee benefit to domestic partners, so long as the contractor provides the employee with a cash equivalent.

B. Provided that a contractor does not discriminate in the provision of benefits between employees with spouses and employees with domestic partners, a contractor may:

1. Elect to provide benefits to individuals in addition to employees' spouses and employees' domestic partners;

2. Allow each employee to designate a legally domiciled member of the employee's household as being eligible for spousal equivalent benefits; or

3. Provide benefits neither to employees' spouses, nor to employees' domestic partners.

C. A contractor will not be deemed to be discriminating in the provision of benefits where the implementation of policies ending discrimination in benefits is delayed following the first award of a City contract to a contractor after the effective date of this Chapter:

1. Until the first effective date after the first open enrollment process following the date the contract with the City is executed, provided that the contractor submits evidence that it is making reasonable efforts to end discrimination in benefits. This delay may not exceed two (2) years from the date the contract with the City is executed and only applies to benefits for which an open enrollment process is applicable.

2. Until administrative steps can be taken to incorporate nondiscrimination in benefits in the contractor's infrastructure. The time allotted for these administrative steps shall apply only to those benefits for which administrative steps are necessary and may not exceed three (3) months. An extension of this time may be granted at the discretion of the City Manager upon the written request of a contractor, setting forth the reasons that additional time is required.

3. Until the expiration of a contractor's current collective bargaining agreement(s) where all of the following conditions have been met:

a. The provision of benefits is governed by one (1) or more collective bargaining agreement(s); and

b. The contractor takes all reasonable measures to end discrimination in benefits by either requesting that the union(s) involved agree to reopen the agreement(s) in order for the contractor to take whatever steps are necessary to end discrimination in benefits or by ending discrimination in benefits without reopening the collective bargaining agreement(s); and

c. In the event that the contractor cannot end discrimination in benefits despite taking all reasonable measure to do so, the contractor provides a cash equivalent to eligible employees for whom benefits are not available. Unless otherwise authorized, in writing by the City Manager, this cash equivalent payment must begin at the time the union(s) refuse to allow the collective bargaining agreement(s) to be reopened, or in any case no

longer than three (3) months from the date the contract with the City was executed. This cash equivalent payment shall not be required where it is prohibited by Federal Labor Law.

D. Employers subject to this Chapter pursuant to Section 2.73.030, shall give written notification to each current and new employee of his or her potential rights under this Chapter in a form specified by the City. Such notice shall also be posted prominently in areas where it may be seen by all employees.
(ORD-09-0036, § 1, 2009)

2.73.050 Required contract provisions.

Every contract subject to this Chapter shall contain provisions requiring it to comply with the provisions of this Chapter as they exist on the date when the contractor entered the contract with the City or when such contract is amended. Such contract provisions may include, but need not be limited to, the contractor's duty to promptly provide to the City documents and information verifying its compliance with the requirements of this Chapter and sanctions for noncompliance.
(ORD-09-0036, § 1, 2009)

2.73.060 Waivers and exemptions.

A. The City may waive the requirements of this Chapter where the City Manager makes one (1) or more of the following findings:

1. Award of a contract or amendment is necessary to respond to an emergency;

2. The contractor is a sole source;

3. The contractor is a nonprofit entity as defined in Section 2.73.020, above;

4. Noncompliant contractors are capable of providing goods or services that respond to the City's requirements;

5. The contractor is a public entity;

6. The requirements of this Chapter are inconsistent with a grant, subvention or agreement with a public agency;

7. The City is purchasing through a cooperative or joint purchasing agreement;

8. The contract involves specialized legal services such that it would be in the best interests of the City to waive the requirements of this Chapter, as determined by the City Attorney;

9. The contract involves investment of trust moneys or agreements relating to the management of trust assets, City moneys invested in U.S. government securities or under pre-existing investment agreements, or the investment of City moneys where no person, entity or financial institution doing business with the City which is in compliance with this Chapter is capable of performing the desired transactions or the City will incur financial loss if the requirements of this Chapter are enforced;

10. After taking all reasonable measures to find an entity that complies with this Chapter, the City may waive any or all requirements of this Chapter for any contract or bid package advertised and made available to the public, or any competitive or sealed bids received by the City as of the effective date of this Chapter under the following circumstances:

a. There are no qualified responsive bidders or prospective contractors who comply with this Chapter and the contract is for goods, a service or a project that is essential to the City or City residents; or

b. The requirements of this Chapter would result in the City's entering into a contract with an entity that was set up, or is being used for the purpose of evading the intent of this Chapter.

B. The requirements of this Chapter shall not be applicable to contracts executed or amended prior to the effective date of this Chapter, or to bid packages advertised and made available to the public, or any competitive or sealed bids received by the City prior to the effective date of this Chapter, unless and until such contracts are amended after the effective date of this Chapter and would otherwise be subject to this Chapter.

C. The City Manager or designee may issue regulations from time to time implementing the provisions of this Chapter.

D. The City Manager shall report to the City Council annually on the status of waivers and exemptions.
(ORD-09-0036, § 1, 2009)

2.73.070 Retaliation and discrimination prohibited.

A. No employer shall retaliate or discriminate against an employee in his or her terms and conditions of employment by reason of the person's status as an employee protected by the requirements of this Chapter.

B. No employer shall retaliate or discriminate against a person in his or her terms and conditions of employment by reason of the person reporting a violation of this Chapter or for prosecuting an action for enforcement of this Chapter.
(ORD-09-0036, § 1, 2009)

2.73.080 Employee complaints to City.

A. An employee who alleges violation of any provision of the requirements of this Chapter may report such acts to the City. The City Manager may establish a procedure for receiving and investigating such complaints and take appropriate enforcement action.

B. The City shall have the power to examine contractors' benefit programs covered by this Chapter.

C. Any complaints received shall be treated as confidential matters, to the extent permitted by law. Any complaints received and all investigation documents related thereto shall be deemed exempt from disclosure pursuant to California Government Code §§ 6254 and 6255.
(ORD-09-0036, § 1, 2009)

2.73.090 Remedies.

A. Upon a finding by the City Manager that a contractor has violated the requirements of this Chapter, the City shall have the rights and remedies described in this Section, in addition to any rights and remedies provided at law or in equity.

1. The City Manager shall be authorized to terminate said contract and bar the contractor from bidding on future contracts with the City for three (3) years from the effective date of the contract termination.

2. In the City Manager's sole discretion, a contractor found to have willfully violated the requirements of this Chapter may be required to pay liquidated damages.

3. The City may seek recovery of reasonable Attorneys' fees and costs necessary for enforcement of this Chapter.

B. Notwithstanding any provision of this Chapter or any other Chapter to the contrary, no criminal penalties shall attach for any violation of this Chapter.

C. No remedy set forth in this Chapter is intended to be exclusive or a prerequisite for asserting a cause of action to enforce any rights hereunder in a court of law. This Chapter shall not be construed to limit an employee's right to bring a common law cause of action for wrongful termination.

D. Nothing in this Chapter shall be interpreted to authorize a right of action against the City.
(ORD-09-0036, § 1, 2009)

CHAPTER 2.75 AMBULANCE SERVICE*

2.75.010 Rates.

A. Except as provided in Section 2.75.020, each person to or for whom emergency ambulance transportation service is furnished by the City by means of the municipally owned or operated emergency vehicle shall pay to the City a fee for such service in accordance with rates established by the City Council.

B. The amount of any fee established until paid shall be deemed a debt to the City and every such person shall be liable in an action in the name of the City in any court of competent jurisdiction therefor. The City Council is invested with the authority to prescribe reasonable rules and regu-

***State law reference**—Provisions authorizing cities to contract for ambulance service to serve their residents, Gov. Code § 38794.

lations with reference to such service. (Ord. C-5691 § 1, 1981; prior code § 4280)

2.75.020 Exemptions.

A. A person in the custody of the Police Department or an employee of the City injured while on duty to or for whom emergency ambulance transportation service is furnished by the City is exempt from the payment of the fee prescribed in Section 2.75.010.

B. The City Manager may authorize the charging of and releasing from further accountability of all accounts incurred as the result of orders or instructions received from civilian defense or other competent major disaster relief authority or of any account determined by him to be noncollectible. Such authorization shall authorize the City accountant to discharge such item from his books and shall relieve such official from any further accountability therefor but such discharge shall not constitute a release of any person from liability for payment of any such account. (Prior code § 4280.1)

CHAPTER 2.78 UNCLAIMED PROPERTY

2.78.010 Inventory.

The City Manager or designee shall, on or before the first Monday in November of each year, and may, at other times which in their discretion appear desirable, make an inventory of all personal property which has come into the possession of the City of Long Beach (City) and has been unclaimed by the owner and will, at the time of any proposed sale or public use, have been in the possession of the City for at least three (3) months. Such inventory shall give a brief description of all property so held. (ORD-20-0014 § 1, 2020; Ord. C-7049 § 1, 1992: prior code § 3570)

2.78.020 Sale—Notice.

Public notice shall be given by publication in the official newspaper of the City at least five (5) days prior to any proposed sale. The notice shall contain a brief description of property to be sold, the time, place, and manner of sale. It shall also contain a brief description of property to be kept or destroyed, and a statement that all of the listed property will be either sold, kept or destroyed if not claimed by the owner before the date set for sale. (ORD-20-0014 § 1, 2020; Prior code § 3570.1)

2.78.030 Weapons, burglar's tools and liquor.

Any arms, weapons, or burglar's tools listed in the notice shall be kept or destroyed by the City, the City Manager or designee to decide in their discretion whether any of such items should be kept or destroyed. All liquors listed in the notice shall be destroyed at the discretion of the City Manager or designee. (ORD-20-0014 § 1, 2020; Prior code § 3570.4)

2.78.040 Sale—Date.

The City Manager or designee shall, on the first Saturday in December of each year, and may, at other times in their discretion, sell at public auction to the highest bidder all property except arms, weapons, burglar's tools, liquors, drugs, and property to be kept for public use. Property that is needed or desired for public use will not be sold at public auction. (ORD-20-0014 § 1, 2020; Ord. C-7049 § 2, 1992: prior code § 3570.2)

2.78.050 Sale—Deposit of proceeds.

All money received from the sale of such property shall be deposited in the general purpose fund of the City. (ORD-20-0014 § 1, 2020; Prior code § 3570.5)

2.78.060 Unsold property disposition.

Any unclaimed property which has been properly inventoried, which is not being kept for public use, and which has been offered for sale and not sold may be summarily destroyed by the City Manager or designee. (ORD-20-0014 § 1, 2020; Ord. C-7049 § 3, 1992: prior code § 3570.3)

CHAPTER 2.81 PUBLIC SAFETY BUILDING

2.81.010 Defined.

"Public safety building," as used in this Chapter, means the public safety building of the City, within which is located the Police Department, the Fire Department, and the City Prosecutor's Department or parts of said Departments and includes any and all areas or parts of said building as it now exists or as the same may hereafter be altered or changed. (Prior code § 7495.1)

2.81.020 Purpose.

It is declared that in accordance with Section 37359 of the California Government Code, it is the purpose of this Chapter to withdraw and limit the personal access or use by members of the public of the public safety building, which is owned and controlled by the City, and to make entry or use of said property without permission or in any manner other than as prescribed by reasonable regulations a trespass. (Prior code § 7495)

2.81.030 Limitation of access and regulation of use.

The City Manager shall have the authority to designate those portions of the public safety building to which the personal access and use of members of the public is withdrawn or limited as deemed necessary, and the City Manager shall establish reasonable regulations relating to the access and use of any such areas of the public safety building by members of the public. Said regulations shall be based upon the maintenance and preservation of the public health, safety, peace, welfare and to ensure the public safety building is used for its intended purposes. One (1) copy of such regulations shall be filed in the office of the City Clerk. Another copy shall be available for inspection by members of the public at or near the public entrance to the public safety building. (Prior code § 7495.2)

2.81.040 Compliance with regulations required.

No person shall enter or use any part of the public safety building to which the access or use has been withdrawn or limited by the City Manager without first fully complying with the regulations prescribed by the City Manager pursuant to Section 2.81.030, or unless a valid pass has been first obtained and is in the immediate possession of such person. Violation of any such regulation or entry into or use of any restricted area of the public safety building without permission or in a manner other than that prescribed by the City Manager is a misdemeanor. (Ord. C-5936 § 1, 1983; prior code § 7495.4)

2.81.050 Sign posting.

The City Manager shall cause appropriate signs to be posted in a conspicuous place at or near each and every entrance to the public safety building, giving notice of the effect of this Chapter and containing the substance of the regulations pertaining to the access or use by persons of the public safety building which have been promulgated by the City Manager pursuant to Section 2.81.030. (Prior code § 7495.3)

2.81.060 Ejection of violators.

Any Policeman or other authorized employee of the City may use reasonable force to remove or expel from the public safety building any person who violates this Chapter and who upon being directed to leave refuses to do so. This provision is in addition to any other remedies provided by law. (Prior code § 7495.5)

CHAPTER 2.83 CLAIMS PROCEDURE

2.83.010 General.

The provisions of this Section recognize that the general claims procedures against local public agencies, including the City, are governed by the provisions of Part 3 of Division 3.6 of the California Government Code, commencing with Section 900 and following. (Ord. C-5753 § 1, 1981; prior code § 2711)

2.83.020 Special claims procedure.

Pursuant to the authority of Section 935 of the Government Code of the State of California,

the City establishes the following claims procedure for those claims for money or damages against the City which are excepted by Section 905 from Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910) of the California Government Code, and which are not governed by any other statutes or regulations expressly relating thereto:

A. Employee claims. Notwithstanding the exceptions contained in Section 905 of the Government Code of the State of California, all claims by public officers or employees for fees, salaries, wages, overtime pay, holiday pay, compensating time off, vacation pay, sick leave pay, back pay and other expenses or allowances claimed due from the City, when a procedure for processing such claims is not otherwise provided by State or local law or memorandum of understanding, shall be presented within the time limitations and in the manner prescribed by Sections 910 through 915.4 of the Government Code of the State of California, and such claims shall further be subject to the provisions of Section 945.4 of the Government Code relating to the prohibition of suit in the absence of presentation of claims and action thereon by the City Council.

B. Contract and other claims. In addition to the requirements of Subsection 2.83.020.A. of this Section and notwithstanding the exemptions set forth in Section 905 of the Government Code of the State of California, all claims against the City for damages or money, when a procedure for processing such claims is not otherwise provided by State or local law, shall be presented within the time limitations and in the manner prescribed by Sections 910 through 915.4 of the Government Code of the State of California and such claims shall further be subject to the provisions of Section 945.4 of the Government Code relating to the prohibition of suit in the absence of presentation of claims and action thereon by the City Council. The foregoing reference to Government Code Section 910 shall not be construed to authorize a class claim, and no claim may be filed on behalf of a class of persons unless verified by every member of that class.

C. Late claims. When a claim required by the procedure to be presented within a period of less than one (1) year after the accrual of the cause of action is not presented within the required time, an application may be made to the City for leave to present such claim. Subdivision (b) of Section 911.4, Sections 911.6 to 912.2, inclusive, and Sections 946.4 and 946.6 of the California Government Code are applicable to all such claims. (ORD-12-0003 § 1, 2012; Ord. C-5753 § 2, 1981; prior code § 2711.1)

CHAPTER 2.84 CONTRACTS

DIVISION I. GENERAL SUPPLIES AND MATERIALS

2.84.010 Authority of City Purchasing Agent and others to contract.

The City Purchasing Agent, with the written approval of and in accordance with procedures provided by the City Manager, and such faithful performance bonds as the City Manager may deem reasonably necessary, is hereby authorized to bind the City through the issuance of a purchase order without advertising for bids for the purchase of services, labor, supplies, materials, goods, or other valuable consideration furnished to the City for amounts not exceeding one hundred thousand dollars ($100,000.00) and, if the purchase will be reimbursed by state or federal grant funds relating to homeland security; or, paid for or reimbursed by funds from the Long Beach Recovery Act, or other stimulus funding listed in the Long Beach Recovery Plan document dated March 16, 2021, or as amended for community recovery from the effects of the COVID-19 pandemic, for amounts not exceeding five hundred thousand dollars ($500,000.00). The Long Beach Recovery Act provision shall remain in effect until revoked by City Council action. For non-state or federal grant related purchases exceeding one hundred thousand dollars ($100,000.00), but not exceeding two hundred thousand dollars ($200,000.00), the City Purchasing Agent is authorized to issue a purchase order if the award is based on an Invitation to Bid (ITB) or a Request for Proposal (RFP)

process, which results in at least three (3) bids or proposals conducted in conformance with this Code and applicable law and purchasing procedures as promulgated by the City Purchasing Agent.

Other persons, categorized as managers in each City department and as delegated authority by the City Purchasing Agent, may make purchases, but only within the limits set forth in this Section and only in accordance with regulations and any additional limitations as set forth by the City Purchasing Agent. (ORD-22-0001 § 1, 2022; ORD-12-0020 § 1, 2012; Ord. C-7922 § 1, 2004; Ord. C-7650 § 1, 1999; Ord. C-6454 § 1, 1988; Ord. C-5745 § 1, 1981; Ord. C-5378 § 1, 1978; prior code § 2730)

2.84.020 Nondiscrimination in City contracts and purchase orders.

All contracts and purchase orders between the City and other persons and entities of any kind shall contain language which prohibits discrimination in employment and discrimination with respect to performance under the contract or purchase order on the basis of race, color, religion, national origin, sex, sexual orientation, gender identity, AIDS, HIV status, age, disability, or handicap, subject to federal and State laws, rules and regulations. (ORD-08-0015 § 1, 2008; Ord. C-7863 § 1, 2003)

2.84.030 Local preference.

A. This Section implements Section 1803 of the City Charter and is based on findings that the amount of local preference described in this Section for local businesses is in the public interest and is necessary to ease disadvantages suffered by local businesses due to the higher costs of doing business in the City of Long Beach.

B. A bid for furnishing materials, equipment, supplies and nonprofessional services pursuant to Section 2.84.010 relating to the authority of the City's purchasing agent to make purchases for City departments reporting to the City Manager shall be reduced by the amount described below in making a determination whether or not the bidder is the lowest responsible bidder, if the bidder meets the following criteria:

1. Has a current, valid business license from the City of Long Beach showing a place of business within the City limits; and

2. Has a current, valid seller's permit (also known as a sales tax permit) showing a place of business within the City limits.

C. A bid from a bidder meeting the criteria described in Subsection B of this Section shall be reduced by ten percent (10%). The maximum preference a bidder may be awarded pursuant to this Section and any other provision of law shall be ten percent (10%). However, in no case shall the maximum preference cost under this Section exceed fifty thousand dollars ($50,000.00) for any bid.

D. This Section shall not apply to bids for purchases made by the Director of Library Services pursuant to Section 1801 of the City Charter or to purchases made pursuant to Section 1807 of the City Charter. This Section shall also not apply to bids for purchases funded by any Tidelands fund, by any grant funds, and by any funds received from the State of California. This Section shall not apply to bids for public works, as that term is defined in Section 1720(a) of the California Labor Code.

(ORD-23-0012 § 1, 2023; ORD-09-0015 § 1 2009; Ord. 05-0020 § 1, 2005; Ord. C-7938 § 1, 2004)

2.84.040 Establishment of insurance requirements for contracts, leases and the like.

A. All contracts, agreements, letters of understanding, letter agreements, memoranda of understanding, leases, permits, licenses and all other similar documents or other written agreements of any kind including, but not limited to, purchase orders and miscellaneous terms and conditions, in which the City of Long Beach, the Board of Water Commissioners, the Redevelopment Agency of the City of Long Beach, California, the Housing Authority of the City of Long Beach, California, and the Long Beach Housing Development Company are a party shall contain the requirements for insurance, bonds, and letters of credit (where such letters of credit serve in lieu of or as a supplement to bonds or insurance) described in regulations promulgated by the City Manager. The requirements in said regulations may only be modified or waived by the City's Risk Manager or, if there is

no risk manager, then by the City Manager or the City Manager's designee or by an employee or consultant hired by the City to provide risk management services. If the Board of Water Commissioners, the Redevelopment Agency of the City of Long Beach, California, the Housing Authority of the City of Long Beach, California, or the Housing Development Company obtains the services of a risk manager, whether as an employee or as an independent contractor, then this Section shall not apply to that entity provided that such entity issues its own regulations relating to insurance requirements. Until such entity promulgates its own regulations, this Section shall apply.

B. The regulations issued by the City Manager shall establish minimum insurance requirements. Any department of the City or any of the entities listed above, when negotiating a contract, agreement, letter of understanding, letter agreement, memorandum of understanding, lease, permit, license, or similar document, or other written agreement of any kind may require higher limits, greater scope of coverage, or otherwise more stringent insurance requirements than stated in the regulations.

The regulations issued by the City Manager may enable the City Manager, or designee, to waive the insurance requirements, or any part thereof, based on an assessment of risk to be insured, the availability of insurance, the cost of insurance, and other objective factors commonly considered in risk management.

C. When a bond or insurance is required by regulations issued by the City Manager, the contract, agreement, letter of understanding, letter agreement, memorandum of understanding, lease, permit, license, or other similar document or other written agreement of any kind including, but not limited to, purchase orders and miscellaneous terms and conditions, shall not be effective until such bond or insurance has been approved as to sufficiency by the City's Risk Management Bureau and approved as to form by the City Attorney. If the required bond or insurance becomes ineffective for any reason, then the contract, agreement, letter of understanding, letter agreement, memorandum of understanding, lease, permit, license, or other similar document or other written agreement of any kind, including, but not limited to, purchase orders and miscellaneous terms and conditions, shall be automatically suspended until such time as a new or renewed bond or insurance is provided that meets the requirements of the City Manager's regulations and is approved as to sufficiency and form.

D. Any bond or insurance required by the administrative regulations issued by the City Manager and provided to the City in accordance with this Section shall not be deemed to limit the liability of or to affect the indemnification from any party. (Ord. C-7934 § 28, 2004)

DIVISION II. (REPEALED)

DIVISION III. PRIVATE WORK OR SERVICES CONTRACTS

2.84.050 Authorized private contracts.

The City Council, based upon the respective findings set forth in this Section, determines that the following work or services to be contracted for can be performed by a private contractor as efficiently, effectively and at an estimated lower cost to the City than if said work or services were performed by employees of the City and declares that it has considered all other relevant factors and has determined that the performance of said work or services by a private contractor will not be detrimental or adverse to the best interests of the citizens of the City:

A. Coordination of the State Immunization Grant Program at the City's Health Department. Findings: The City Health Department has operated an immunization program under a special grant for the State since 1975. In July, 1978, the City, at the specific request of the State, created a civil service job classification of Immunization Program Coordinator to assure the proper coordination of said program. The State has informed the City that it will no longer approve a full-time coordinator for said program. In order to maintain the same level of service and satisfy State requirements, it is necessary to hire a coordinator

of said program on an hourly contract rate basis and to eliminate the civil service job classification of Immunization Program Coordinator.

B. Elevator Maintenance and Repair. Since 1980, elevator maintenance work and services for all City facilities has been performed by private contractors. Prior to that time, the Public Service Bureau and the Civil Service Commission made a concerted effort to recruit employees to perform said work and services, but were unable to obtain qualified applicants, due to the large disparity between City and union wage rates, which disparity could not and cannot be overcome without impacting other crafts and supervisor pay rates. The elevator maintenance and repair work performed by a private contractor heretofore has been as efficient and effective as if said services were performed by City employees. Further, formal bids have been received for elevator maintenance and repair for those City facilities other than City Hall. Based thereon, the annual cost to the City if said work and services were performed by private contractor is approximately fifty-four thousand seven hundred dollars ($54,700.00); said annual cost if performed by City employees is approximately one hundred seventy-one thousand dollars ($171,000.00). Therefore, there is a cost savings in excess of one hundred sixteen thousand dollars ($116,000.00) if said work and services are performed by a private contractor rather than by City employees.

C. Starter Services for City Golf Courses. Findings: The continued use of City employee starters will cost two hundred ninety-three thousand dollars ($293,000.00), plus administrative costs, for fiscal year 1981—1982. Based upon the low bid received, contracting with the low bidder to provide these services will cost one hundred thirty-five thousand dollars ($135,000.00) per year, which represents an annual savings of one hundred fifty-eight thousand dollars ($158,000.00) for fiscal year 1981—1982, which annual savings will increase each ensuing year as the cost of providing these services by City employees increases. Furthermore, the low bidder offers a more effective and efficient service than can be provided by City employees. Contracting with the low bidder to provide these services also will enable the City to retain the present golf fees, which would have to be increased in the near future if these services continued to be provided by City employees.

D. Long Beach Convention and Entertainment Center. Findings: Pursuant to an agreement with the State of California dated September 12, 1974, the Long Beach Convention and Entertainment Center ("Center") and the revenues to the City from the operation thereof have been dedicated to and are a part of the Tidelands Trust. Since the dedication and opening of the Center in January, 1978, the operating expenses and parking authority and Gas Department revenue bond debt service obligations of the Center have exceeded the revenues for the same period. The deficits are due in part to the cost of work and services performed by City employees. At the direction of the City Council, the City Manager, on June 17, 1980 and December 16, 1980, solicited proposals for a qualified private contractor for the management of all operations and activities at the Center. None of the proposals received from either solicitation were responsive to the City's requirements and were rejected by the City Council. On April 14, 1981 the City Council authorized the City Manager to enter into negotiations to determine if an agreement for the assumption of operational activities at the Center by a private contractor could be structured which would be acceptable to a private contractor. Such an agreement has been negotiated, which by its terms provides a total labor cost saving to the City over the five (5) year term of the contract of two million two hundred fifteen thousand dollars ($2,215,000.00). It is, therefore, found and determined that the Center can be operated as efficiently, effectively, and at a lower estimated cost by a private contractor rather than City employees.

E. Rehabilitation Treatment Services. Findings: The City Health Department has operated alcohol rehabilitation, drug rehabilitation and drinking driver programs for several years. Federal, State and County budget cuts, along with increased costs, make it impossible for those pro-

grams to operate in a self-supporting mode. Attempting to reduce expenditures by decreasing staff created the cyclical problem of reducing service units generated, which in turn reduces revenues. Based upon the low bids submitted for case management services and the rates negotiated for professional services for the conduct of these programs for the period from October 1, 1982 to October 1, 1983, it has been determined that these services can be performed at a lower cost to the City through the use of private contractors than if said services or work were performed by employees of the City. If after the expiration of such contracts the City Manager determines that it would be in the best interests of the City to continue to provide these services through private contractors, the City Manager shall submit detailed comparative cost data and other relevant information to the City Council pertaining to the continued performance of such services by private contractors so that the City Council may determine whether the findings stated herein continue to exist in order that such contracts may be authorized by the City Council.

F. Long Beach Museum of Art. Findings: Pursuant to a minute order adopted by the City Council at its meeting of July 24, 1985 the City entered into an "Agreement Delegating Authority for Maintenance and Operation of the Long Beach Museum of Art" with the Long Beach Museum of Art Foundation, a California nonprofit public benefit corporation. That agreement has two (2) terms, a development term and a management term. The development term commenced upon the signing of the agreement and contains certain conditions precedent which must be satisfied before the management term can begin. In fulfillment of one (1) of the conditions the Foundation has submitted a five (5) year development plan which clearly demonstrates that the services can be performed by the Foundation as efficiently and effectively as if the services were performed by employees of the City. Considering other relevant factors such as the proposed increase in spending on acquisition of artwork and exhibitions as well as the contemplated endowment for new facilities, it is determined that performance of said services by the contractor will not be detrimental or adverse to the best interests of the citizens of the City; in fact, it would be beneficial. It would cost the City a minimum of two million two hundred six thousand two hundred fifty dollars ($2,206,250.00) to maintain and operate the museum for the next five (5) years. Under the contract, the City would pay the Foundation three hundred fifty-seven thousand six hundred twenty-one dollars ($357,621.00) per year or one million seven hundred eighty-eight thousand one hundred five dollars ($1,788,105.00) for five (5) years which is a minimum savings of four hundred eighteen thousand one hundred forty-five dollars ($418,145.00). Therefore, it is found and determined that the Foundation can perform, operate and maintain the Long Beach Museum of Art at an estimated lower cost than if the work were performed by City employees. (Ord. C-6335 § 1, 1987; Ord. C-6183 § 1, 1985; Ord. C-5888 § 1, 1982; Ord. C-5758 § 1, 1981; Ord. C-5752 § 1, 1981; Ord. C-5718 § 1, 1981; Ord. C-5628 § 1, 1980; Ord. C-5619 § 1, 1980; prior code § 2900)

DIVISION IV. REAL ESTATE PURCHASE CONTRACTS

2.84.060 Real estate purchase contracts.

A. Any person or entity selling real property to the City, for a sales price of one million dollars ($1,000,000) or more, shall be required to disclose in writing the identity of all third-party, finders, brokers and/or agents entitled to any compensation from the seller, or agent of the seller, resulting from the sale, and the nature and value of such compensation; provided, however that written disclosure shall not be required if such third-party's compensation is valued at less than ten thousand dollars ($10,000).

B. Seller shall preserve and maintain, for a period of not less than three (3) years after completion of the subject sale of real property, all financial records related to such sale, and such records shall be open to inspection, examination and audit by City upon three (3) days' advance notice of City's intention to exercise its rights hereunder.

C. If the City determines that the requirements of this Section have been violated by any person, the City shall assess a civil penalty against such person in an amount equal to ten percent (10%) of the total compensation paid by City to seller in connection with the subject sale of real property to the City. The City shall give notice of the assessment of this penalty to the seller, and the seller may appeal the imposition of this penalty to the City Council in accordance with Section 2.93. The civil penalty shall constitute a debt of the person charged to the City of Long Beach and is collectible by the City as an obligation or liability created by statute. (ORD-14-0008 § 1, 2014)

DIVISION V. PROCUREMENT AND MANAGEMENT OF JOB ORDER CONTRACTS

2.84.070 Intent.

The City Manager shall prepare and adopt a JOC Policy that, at a minimum, establishes the following: the program's intent, providing specific criteria describing the type of projects that may be authorized; and a process whereby each individual job order is reviewed and approved by the appropriate level of management prior to issuance and in advance of payment. The JOC program shall be used for simple construction projects, remodeling, maintenance, and repair work. The JOC program shall not be used for large, complex new construction projects that require extensive design. (ORD-16-0008 § 1, 2016)

2.84.080 Review.

Each individual job order shall not be approved by the City until a responsible, knowledgeable person other than the project manager has independently completed an estimate and review of the JOC contractor's cost proposal to ensure that the contractor's proposal aligns appropriately with the City's scope of work, that the listed tasks are appropriate and the quantities are accurate, and that unit and system costs are not redundant. If the City determines that the traditional methods of project delivery result in the best value to the City, the availability and ease of use of JOC shall not preclude the use of traditional methods of project delivery. (ORD-16-0008 § 1, 2016)

2.84.090 Prequalification.

The JOC Policy shall establish a process for prequalifying job order contractors in accordance with the requirements of Public Contract Code Section 20101. All contractors must be prequalified prior to submitting a bid for a JOC master contract to provide a reasonable level of assurance that JOC contracts are awarded to contractors who have demonstrated competency, capacity, financial strength and relevant experience to satisfactorily perform the JOC contracts. (ORD-16-0008 § 1, 2016)

2.84.100 Term.

Initial contract terms for JOC master contracts shall not exceed twelve (12) months, with an option of extending the contract for two (2) additional 12-month periods, for a maximum term of three (3) years. No single job order project may exceed Seven Hundred Fifty Thousand Dollars ($750,000.00) during the term of the JOC master contract. No job order project shall be split or separated into small job orders for the purposes of evading the Seven Hundred Fifty Thousand Dollars ($750,000.00) cost limit. (ORD-21-0038 § 1, 2021; ORD-16-0008 § 1, 2016)

2.84.110 Contract performance.

The JOC contractor must perform a minimum of fifteen percent (15%) of the contract work for a project, with no more than eighty-five percent (85%) of the work done by subcontractors. All subcontractors used by the primary contractor must be pre-approved by the City, and at a minimum be required to be licensed, hold liability insurance, and have sufficient relevant experience. (ORD-21-0038 § 2, 2021; ORD-16-0008 § 1, 2016)

2.84.120 Non-prepriced items.

The City shall not approve a job order if the cost of items not listed in the pre-priced unit catalog exceeds ten percent (10%) of the total cost proposal, without written approval of the City

Manager or his/her designee. If items not listed in the job catalog are included in the contractor's proposal, the contractor shall be required to obtain three (3) written quotes and use the lowest qualifying quote. For non-prepriced items that are sole source products, the contractor must justify in writing the reasons that three (3) quotes were not obtained. The City shall approve the use of all non-prepriced items and retain all documentation related to the selection of the non-prepriced items, including the three (3) written quotes obtained by the contractor or the documented reason for the lack of three (3) quotes. (ORD-16-0008 § 1, 2016)

2.84.130 Non-exclusive.

The City may award multiple JOC master contracts to prequalified contractors through a competitive bid process whereby contractors bid a percentage, plus or minus, of the unit prices published in the pre-priced unit catalog. Pursuant to Section 1804 of the City Charter, the City Manager in his/her discretion may reject any or all bids presented and may rebid if in the best interest of the City. (ORD-16-0008 § 1, 2016)

2.84.140 Conflicts.

The JOC Policy shall establish an effective management oversight structure to ensure that project managers receive adequate training to properly administer the JOC contracts and that project managers are sufficiently involved in administering the job orders. Consultants hired by the City as managers of JOC projects should not be affiliated with any entity that provides services related to the JOC project, such as design or engineering services. (ORD-16-0008 § 1, 2016)

2.84.150 Evaluation.

The JOC Policy shall establish a consistent and formal job proposal, project management, and project close out and acceptance process. The close out process shall include the documented performance evaluation of contractors and subcontractors to ensure work is done to the City's satisfaction and to ensure that poorly performing contractors and subcontractors are not used on future JOC projects. All City Manager departments using JOC shall follow the same processes and procedures outlined in the JOC Policy, including use of a common JOC project management software for project documentation and post project review. (ORD-16-0008 § 1, 2016)

2.84.160 Document availability.

Once the City has issued a job order, all documents pertaining to the job order shall be available for public review. (ORD-16-0008 § 1, 2016)

2.84.170 Suspensions.

A. Suspend provisions of Chapter 2.84 that pertain to single job order thresholds for projects which address ongoing impacts caused by homelessness, for a more efficient and timelier project delivery.

B. This Section 2.84.170 shall expire on the later of (i) July 23, 2024, or (ii) with respect to projects begun prior to such date but not yet complete, on the date of completion of such project, unless further extended by the City Council in its discretion by an amendment to this Chapter. (ORD-23-0037 § 1, 2023; ORD-23-0003(Emerg.) § 1, 2023)

CHAPTER 2.85 PROCUREMENT DURING A PROCLAIMED EMERGENCY OR DISASTER

2.85.010 Purpose.

This ordinance establishes the City's procurement practices to be followed in the event of an emergency or disaster, such that the City is able to effectively obtain the goods or services required in such circumstances. (ORD-16-0001 § 1, 2016)

2.85.020 Definitions.

A. "Proclaimed Emergency or Disaster" as defined in this Chapter means the President or Governor has declared or proclaimed a State of Emergency for an area that includes the geographic territory of the City; or a local emergency

has been proclaimed and is currently in effect, as provided in the City of Long Beach Municipal Code, Chapter 2.69 - Civil Defense.

B. "Public Exigency or Emergency" as defined in this Chapter means a situation, related to a Proclaimed Emergency or Disaster, which demands immediate aid or action and/or presents an immediate threat to public health, life safety, or improved property, as further defined in administrative regulations or policies.

C. "Purchase(s)" as defined in this Chapter means the purchase(s), rental(s) or lease(s) of goods or services related to a Proclaimed Emergency or Disaster.

D. "Simplified Acquisition Threshold" means the dollar amount below which a non-Federal entity may purchase property or services using small purchase methods, as set forth in Title 2 of the Code of Federal Regulations, Part 200, as it may be amended from time to time. (ORD-16-0001 § 1, 2016)

2.85.030 Purchasing authority during a Proclaimed Emergency or Disaster.

In the event of a Proclaimed Emergency or Disaster, the following purchasing authority is granted:

A. The department heads or their designees of the Police Department, Fire Department, Public Works Department, Health Department, and any other department designated by the City Manager, have the authority to approve Purchases up to the Simplified Acquisition Threshold, following the procedures in Section 2.85.040.

B. The Purchasing Agent or his or her designee has the authority to approve Purchases up to five hundred thousand dollars ($500,000.00), following the procedures in Section 2.85.040. The Finance and Administration Section Chief shall be a designee of the Purchasing Agent at any time that the Purchasing Agent is not available to approve Purchases or conduct procurements as allowed in this Chapter.

C. The City Manager or his or her designee has the authority to approve Purchases up to one million dollars ($1,000,000.00), following the procedures in Section 2.85.040.

D. Purchases that exceed one million dollars ($1,000,000.00) require the approval of a minimum of three (3) City Council members, or a minimum of two (2) City Council members and the Mayor. Such Purchases shall follow the procedures in Section 2.85.040. (ORD-16-0001 § 1, 2016)

2.85.040 Procurement procedures during a Proclaimed Emergency or Disaster.

A. The regulations in Title 2 of the Code of Federal Regulations, Part 200, as it may be amended from time to time, are incorporated herein by reference.

B. Procedures for Competitive Procurements.

1. Competitive procurements for Purchases below the Simplified Acquisition Threshold shall not be required to be formally bid.

2. Competitive procurements for Purchases equal to or exceeding the Simplified Acquisition Threshold shall be conducted in accordance with the following alternate purchasing procedures:

a. Public Announcement. For public posting of requests for proposals or solicitation of bids, the Purchasing Agent may use alternate posting requirements in lieu of normal requirements. Alternate locations may include the Emergency Operations Center, City Hall, the central library, or other locations as specified by the Purchasing Agent. The Purchasing Agent may shorten the normal period for public announcement period to expedite award, but such period shall be no less than twenty-four (24) hours.

b. Adequate Sources. The Purchasing Agent shall obtain competitive sealed bids or proposals from potential suppliers. The Purchasing Agent may use methods including but not limited to print, telephonic email, or online/Internet outreach in order to obtain these responses. The Purchasing Agent may shorten the typical period for responses to be submitted to expedite award, but such period shall be no less than twenty-four (24) hours. A minimum of three (3) responses from qualified sources shall be obtained. All bids or proposals received, including those deemed nonresponsive by the Purchasing Agent, shall be counted toward meeting the minimum requirement.

C. Procedures for Noncompetitive Procurements.

1. Noncompetitive procurements may be used when one or more of the following circumstances exist:

a. Public Exigency or Emergency will not permit a delay resulting from competitive procurement;

b. The item is available only from a single source;

c. After solicitation of a number of sources, competition is determined inadequate; or

d. The Federal awarding agency or pass-through entity expressly authorizes noncompetitive proposals in response to a written request from the non-Federal entity.

2. The authorized purchaser shall document the justification for noncompetitive procurement in accordance with established procedures.

3. When a noncompetitive procurement is used due to Public Exigency or Emergency, the procurement shall be limited to that portion of the work that must be performed immediately. Procurement for any additional work shall be conducted through competitive procurement procedures. (ORD-16-0001 § 1, 2016)

2.85.050 Post—Award.

A. Bid Protests. The Purchasing Agent may alter and/or shorten the normal bid protest process if Emergency Circumstances will not permit a delay resulting from the normal bid protest process, but such period shall be no less than twenty-four (24) hours.

B. Posting of Contract Awards. All contracts awarded under this Chapter that would be presented to City Council under the normal award process shall be presented to the City Council at the next practicable opportunity for receive and file, and thereafter shall be publicly posted within sixty (60) days of the award.

C. Authority to Cancel Procurements. The City Manager or his or her designee has the authority to rescind a Purchase contract for non-performance within twenty-four (24) hours when a contractor or vendor, once awarded a contract, is unable to immediately perform under the terms of the contract.

D. Administrative Regulations or Policies. The Director of Financial Management or his or her designee shall create written administrative regulations or policies to implement this Chapter, which shall include procedures requiring immediate notification to City Council if a disaster is declared by other than City Council and shall include mechanisms for notifying City Council of any purchases made (after the fact) that would have required City Council approval if there had not been an emergency. (ORD-16-0001 § 1, 2016)

CHAPTER 2.86 PUBLIC CONTRACTS

2.86.010 General.

A. As a municipal corporation and Charter City, the City of Long Beach is exempt from and is not subject to the State Contract Act, Division 2, Part 2 of the Public Contract Code.

B. Notwithstanding anything to the contrary in the Public Contract Code, the requirements for and guidelines relating to a public works contract, including, but not limited to, notice, publication, the dollar amount of the public project triggering a bid, and the method of contracting during an emergency, shall be as set forth in the City Charter and in this Code. (Ord. C-7819 § 1, 2002)

2.86.020 Definitions.

A. Notwithstanding anything to the contrary in the Public Contract Code, "emergency" shall mean an unexpected occurrence that poses a risk to life, health, property or any public service or that poses a safety hazard, in the discretion of an officer of the City.

B. Notwithstanding anything to the contrary in the Public Contract Code, "public project" shall mean a project for the construction of publicly-owned infrastructure which has a useful life of at least five (5) years or a project for the alteration or substantial repair of publicly-owned infrastructure which will extend its useful life at least five (5) years.

C. Notwithstanding anything to the contrary in the Public Contract Code, "public works contract" shall mean an agreement for the construction of publicly-owned infrastructure which has a useful life of at least five (5) years or an agreement for the alteration or substantial repair of publicly-owned infrastructure which will extend its useful life at least five (5) years.

D. Notwithstanding anything to the contrary in the Public Contract Code, "responsible bidder" means a bidder who has demonstrated the attributes of trustworthiness, quality, fitness, capacity and experience to perform a public works contract, in the sole discretion of the City. A bidder is not responsible if a determination of nonresponsibility is made in accordance with Chapter 2.93 of this Title. (Ord. C-7819 § 1, 2002)

2.86.030 Mandatory prebid conference.

Notwithstanding anything to the contrary in the Public Contract Code, the City will identify the date, time and location of a mandatory prebid conference or site visit in the notice inviting bids for public works contracts, which date, time and location shall be at the sole discretion of the City. (Ord. C-7819 § 1, 2002)

2.86.040 Work by City forces; plans and specifications.

Notwithstanding anything to the contrary in the Public Contract Code, if the City has prepared plans and specifications in order to seek bids for a public project but the City decides to do the work with the City's own forces, then the City may alter the plans and specifications in its sole discretion prior to performing the work. (Ord. C-7819 § 1, 2002)

2.86.050 Contract provisions for architectural design services.

Notwithstanding anything to the contrary in the Public Contract Code, in the procurement of architectural design services the City shall not be required to commit to or disclose contract provisions regarding liability, indemnity, or any other subject prior to the selection of an architectural design company and the negotiation of a contract for such services. Contract provisions are subject to negotiation and the prior disclosure of or commitment to particular provisions may preclude the City from obtaining the best available services. (Ord. C-7819 § 1, 2002)

2.86.060 Alternates in bids.

Notwithstanding anything to the contrary in the Public Contract Code, the City reserves the right to determine the lowest responsible bidder based on an analysis of the base bid and any one (1) or more alternates, in the City's sole discretion. Subsequent to the bid opening and a determination of the lowest responsible bidder based on such analysis, the City additionally reserves the right in its sole discretion to award a public works contract that adds one (1) or more alternates to the work even if those alternates were not used in the analysis to determine the lowest responsible bidder. (Ord. C-7819 § 1, 2002)

2.86.070 Claims and the payment of claims related to public works contracts.

Notwithstanding anything to the contrary in the Public Contract Code regarding claims or the payment of claims, all claims relating to public works contracts and payments based on those claims shall be resolved in accordance with Title 1, Division 3.6, Part 4 of the California Government Code or in accordance with this Code. The City shall not be required to arbitrate any claim. (Ord. C-7819 § 1, 2002)

2.86.080 Bidder's security.

Notwithstanding anything to the contrary in the Public Contract Code, the City may deposit the bidder's security in the general fund or in any other fund or subfund, as directed by an officer of the City. (Ord. C-7819 § 1, 2002)

2.86.090 Rebids and phases of work.

A. Notwithstanding anything to the contrary in the Public Contract Code, the City may reject all bids and thereafter, in the discretion of the City Engineer or the Chief Engineer of the Long Beach

Water Department, may rebid using the same plans and specifications, or may modify the plans and specifications by the addition or deduction of work and then rebid, or may determine that the public project is most feasible if done in phases and may then bid the public project in phases.

B. Notwithstanding anything to the contrary in the Public Contract Code, the City may at any time and in its sole discretion, whether or not after a bid and rebid, choose to construct a public project in phases or choose to split a public project into small items of work. (Ord. C-7819 § 1, 2002)

CHAPTER 2.87 PUBLIC WORKS CONTRACTS AND WAGES*

DIVISION I. CONTRACTS

2.87.010 Definitions.

A. "General contractor" is defined as any person who undertakes, or offers to undertake, or does himself or through others, the construction, alteration, repair, addition to, subtraction from, improvement, moving, wrecking or demolishing any building or other structure, project, development or improvement, including the erection of scaffolding, or other structures, or works in connection therewith.

B. "Public work" or "public improvement" shall not include:

1. Work on streets, highways, alleys, bridges, and including all construction work financed with gasoline tax funds;

2. Work financed with federal and County funds, including County flood control work;

3. Construction work financed by motor vehicle license fees;

4. Work on sewers or storm drains;

5. Contracts awarded under the Improvement Act of 1911.

C. "Subcontractor" is defined as any person who undertakes, or offers to undertake, or does by himself or through others, for a general contractor, the furnishing of any labor or service in constructing, altering, repairing, adding to, subtracting from, altering, moving, wrecking, or demolishing any building or other structure, project, or development, or improvement, including the erection of scaffolding, or other structure, or works in connection therewith. (Prior code §§ 7110.5, 7110.6 and 7110.7)

2.87.020 Subcontractor—Identification.

The City Manager shall include in the specifications prepared for public work or improvement a provision that any general contractor bidding on such public work or improvement shall set forth in his bid the name and location of the place of business of each subcontractor who will perform labor or render service to the general contractor in the performance of said public work or improvement in an amount in excess of one-half of one percent (0.5%) of the general contractor's total bid, and the general contractor shall specify the portion of the work which will be performed by each of said subcontractors. (Prior code § 7110)

2.87.030 Subcontractor—Substitution prohibited.

A general contractor who has been awarded a contract, without the consent of the City Manager, shall neither:

A. Substitute any person as a subcontractor in place of the subcontractor designated in the original bid;

B. Permit any such contract to be assigned or transferred or allow it to be performed by anyone other than the subcontractor listed in the bid;

C. Sublet or subcontract any portion of the work in excess of one-half of one percent (0.5%) of the general contractor's total bid as to which general contractor's original bid did not designate a subcontractor. (Prior code § 7110.2)

2.87.040 Subcontractor—Failure to specify.

If a general contractor fails to specify a subcontractor for any portion of the work to be performed under the contract in excess of one-half of one percent (0.5%) of the general contractor's total bid, then the general contractor shall per-

*Cross reference—Further provisions on public facilities, see Title 16 of this Code.

form such part of the work or improvement himself. (Prior code § 7110.2)

2.87.050 Subcontractor—Substitution authorization.

The City Manager may give his consent to a substitution of a subcontractor under any of the following conditions:

A. If the subcontractor named in the bid, after having a reasonable opportunity to do so, fails or refuses to execute a written contract when said written contract, based upon the general terms, conditions, plans and specifications for the project involved, or the terms of such contractor's written bid, is presented to him by the general contractor;

B. If the subcontractor listed fails, refuses or neglects, within a reasonable time after requested by the general contractor, to commence labor or service to be rendered by such subcontractor, or to diligently complete the service or labor after commencement thereof;

C. If the work being performed by the subcontractor is not being prosecuted in a manner satisfactory to the City Engineer. (Prior code § 7110.3)

2.87.060 Subcontractor—Emergency requirement.

The City Manager may permit the subletting or subcontracting of work in excess of one-half of one percent (0.5%) of the general contractor's total bid, as to which he did not designate a subcontractor, if he finds that public emergency or necessity requires such portion of the work to be subcontracted or sublet, and provided the facts constituting the emergency or necessity are set forth in writing and filed with the City Council. (Prior code § 7110.4)

2.87.070 Subcontractor—Responsibility for work.

No subcontractor shall be recognized as such by the City, and all persons engaged in the work of construction shall be considered as employees of the general contractor, and said general contractor shall be held responsible for the work of any subcontractor performed under any contract awarded by the City Manager. (Prior code § 7110.8)

2.87.080 Violation—Contract cancellation.

A general contractor violating any of the provisions of this Chapter, violates his contract and the City Manager may cancel the contract. After any such violation, the general contractor shall be penalized to the extent of twenty percent (20%) of the amount of the subcontract involved. Funds recovered through the application of this penalty shall be deposited in the general purpose fund of the City. (Prior code § 7110.9)

DIVISION II. WAGES

2.87.090 Public work defined.

"Public work" as used in Sections 2.87.090 through 2.87.140 means the construction or repair of any public building, street, sewer, or other property or improvement work done under contract and paid for, in whole or in part, out of public funds. (Prior code § 7120)

2.87.100 Rates—Determination.

The Council shall, within thirty (30) days after the 31st day of July, 1953, by resolution, ascertain and determine the general prevailing rate of per diem wages and overtime wages in the City for each craft or type of laborer, workman, or mechanic required in the performance of public work. A copy of said resolution shall be filed in the office of the City Engineer, the office of the General Manager of the Water Department, and in the office of the Chief Engineer of the Harbor Department. (Prior code § 7120.1)

2.87.110 Rates—Amendment.

The Council shall, from time to time, as changes are made in the general prevailing rate of per diem wages and overtime wages in the City, amend said resolution or adopt a new resolution ascertaining and determining the general prevailing rate of per diem wages and overtime wages referred to in Section 2.87.100. Copies of such amendment, or new resolution, shall be filed with the parties designated in Section 2.87.100. (Prior code § 7120.2)

2.87.120 Bid advertisement to include rates.

The City Manager, the Board of Water Commissioners, the General Manager of the Harbor Department, or any other person authorized to advertise for bids for public work, shall include in the notice inviting bids a proviso to the effect that the Council has ascertained and determined the general prevailing rate of per diem wages and overtime wages for each craft, or type of laborer, workman or mechanic necessary to execute said contract; that a copy of said resolution is on file in the office of the City Engineer, the office of the General Manager of the Water Department, and the office of the Harbor Engineer of the Harbor Department, and that said job classifications, general prevailing rate of per diem wages and overtime wages therefor, are incorporated in said notice by such reference, with like force and effect as if expressly set forth in said notice, and that any contract awarded thereunder shall provide that the contractor must comply with the general prevailing rate of per diem wages and overtime wages as specified in said resolution. (Prior code § 7120.4)

2.87.130 Contract—Compliance with wage rates.

Any contract for public work awarded by the City Manager, the Board of Water Commissioners, the General Manager of the Harbor Department, or any other person authorized to award a contract for public work, shall provide that the contractor must comply with the general prevailing rate of per diem wages and overtime wages as set forth in the aforesaid resolution or amendment thereto, and shall provide that the contractor shall forfeit as a penalty to the City, a sum as determined by the City Council by resolution for each craft, or laborer, workman or mechanic for each day or portion thereof said laborer, workman or mechanic is paid less than the specified rate for work done by him under said contract or for any subcontractor under said contract. (ORD-10-0014, § 3, 2010; Ord. C-6791 § 1, 1990: prior code § 7120.3)

2.87.140 Contract—Rates incorporated.

The City Manager, the Board of Water Commissioners, the General Manager of the Harbor Department, or any other person authorized to award contracts for public work, shall in any contract so awarded, provide that the general prevailing rate of per diem wages and overtime wages, as ascertained and determined by resolution or amendment thereto, be incorporated in said contract by reference to said resolution, and be made a part of said contract with like force and effect as if expressly written therein. (Prior code § 7120.5)

CHAPTER 2.90 ENVIRONMENTAL IMPACT REPORTS*

2.90.010 Determination of requirement.

The Director of Planning shall review all projects as defined in Section 21065 of the Public Resources Code of the State to determine:

A. Whether a project may have a significant effect on the environment or requires an environmental impact report pursuant to the provisions of the Environmental Quality Act of 1970 of the State (Pub. Res. C. § 21050 et seq.) as amended;

B. Whether an environmental impact report required by said Act meets the criteria of said Act, as amended, and the guidelines and regulations adopted pursuant thereto. (Prior code § 9300)

2.90.020 Fees.

Unless the City is the proponent of the project or the applicant or proponent is otherwise expressly exempt by law from the payment of a fee, the applicant or proponent of any project as defined herein shall pay to the City a fee as follows:

A. The preparation of a statement containing a finding that the project will not have a significant effect on the environment	$50.00
B. The preparation of an environmental impact report with regard to such project .	$525.00

***State law reference**—Provisions pertaining to environmental impact reports, Pub. Res. Code § 2150 et seq.

C. Duplication of environmental impact reports	$0.15 per page

(Prior code § 9301)

CHAPTER 2.93 CONDUCT OF HEARINGS

2.93.010 Applicability.

This Chapter applies to the conduct of all hearings, appeals or investigations held by the City Council, the Planning Commission or the Board of Examiners, Appeals and Condemnation pursuant to this Code or any other applicable law where oral evidence or testimony is received and where personal or property rights are involved. This Chapter does not apply to and is not intended to infringe upon the right of a citizen to petition his government for redress. This Chapter applies to all City personnel who testify or present evidence in a hearing. (Ord. C-5232 § 1 (part), 1976: prior code § 2780)

2.93.020 Oath or affirmation.

A. All oral evidence or testimony shall be taken only on oath or affirmation. The presiding officer, the City Clerk or the Secretary of the respective Board or Commission may administer the oath. In a given case where many witnesses are expected to testify, the presiding officer has the discretion to have all prospective witnesses rise and be sworn at the same time at the outset of the proceedings.

B. The oath or affirmation may be administered as follows, the person who swears or affirms expressing his assent when addressed in the following form:

You do solemnly swear (or affirm, as the case may be), that the evidence you shall give in this issue (or matter), pending before this body, shall be the truth, the whole truth, and nothing but the truth, so help you God. (Ord. C-5232 § 1 (part), 1976: prior code § 2780.1)

2.93.030 Rules of evidence.

The hearing need not be conducted according to technical rules relating to evidence and witnesses. Any relevant evidence shall be admitted if it is the sort of evidence on which responsible persons are accustomed to rely in the conduct of serious affairs, regardless of the existence of any common law or statutory rule which might make improper the admission of such evidence over objection in civil actions. Hearsay evidence may be used for the purpose of supplementing or explaining other evidence but shall not be sufficient in itself to support a finding unless it would be admissible over objection in civil actions. The rules of privilege shall be effective to the extent that they are otherwise required by statute to be recognized at the hearing, and irrelevant and unduly repetitious evidence shall be excluded. (Ord. C-5232 § 1 (part), 1976: prior code § 2780.2)

2.93.040 Examination of witnesses.

In a contested proceeding each side shall have these rights: to call and examine witnesses; to introduce exhibits; to cross-examine opposing witnesses on any matter relevant to the issues; to impeach any witness and to rebut the evidence against him. The presiding officer has the discretionary authority to: limit the number of witnesses to testify for each side where their testimony would be cumulative or repetitive in nature; require each side to appoint one (1) spokesman for purposes of cross-examination; limit or curtail any abusive, argumentative, repetitive, or otherwise irrelevant cross-examination; and in conformance with other rules in this Code place reasonable time limits on the right to cross-examine and the presenting of evidence. (Ord. C-5232 § 1 (part), 1976: prior code § 2780.3)

2.93.050 Hearing procedure—City Council.

A. Whenever it is provided that a hearing governed by this Chapter shall be heard by the City Council, the Council may, in its discretion, either conduct the hearing itself or appoint a Hearing Officer to conduct the hearing.

B. If a Hearing Officer conducts a hearing the following procedures shall apply:

1. Upon selection of a Hearing Officer, the City Clerk shall set the time and place for the

hearing. Notice of hearing shall be sent to interested parties at least twenty (20) days before the hearing.

2. Any party may be represented by counsel; the hearings shall be public and shall be conducted pursuant to the provisions of this Chapter; and the City Clerk shall provide necessary tape recordings as may be reasonably required by the Hearing Officer.

3. The Hearing Officer shall determine the order of proceedings and shall afford all parties a reasonable opportunity to present any relevant evidence. If a party is absent, the Hearing Officer may proceed with the hearing in that party's absence if due notice was given and no explanation for the absence was given.

4. Other than at the hearing, there shall be no direct communication between the parties and the Hearing Officer on any matter related to the hearing. All oral or written communication from the parties shall be directed to the City Clerk for transmittal to the Hearing Officer.

5. The Hearing Officer shall render his decision not later than fifteen (15) days after the hearing is closed and shall immediately file a report with the City Council. At the request of the Hearing Officer, the City Council may extend this reporting period.

6. The report shall be in writing and shall include findings of fact, a summary of the relevant evidence, a statement of the issues, a resolution of the credibility of witnesses where there is conflicting testimony and a recommended decision. A copy of the report shall be served on all parties.

7. Upon receipt, the City Council shall set a time for a hearing to review and consider the report. Notice of hearing shall be sent to all interested parties at least ten (10) days before the hearing.

8. After review of the Hearing Officer's report, the City Council may adopt, reject or modify the recommended decision. In its discretion, the City Council may take additional evidence at the hearing or refer the case to the Hearing Officer with instructions to consider additional evidence.

9. Notice of the City Council's decision shall be served on all interested parties by the City Clerk and the decision takes effect upon such service. If notice is mailed, service is complete when mailed. Unless otherwise provided, this notice provision shall apply to all hearings including those not conducted by a Hearing Officer. (Ord. C-6003 § 1, 1983)

2.93.060 Hearing procedure on contractor's or vendor's nonresponsibility.

A. The City finds that, in order to promote integrity in its contracting processes and to protect the public interest, it shall be the City's policy to conduct business only with responsible contractors and vendors. Notwithstanding anything to the contrary in this Code, the provisions of this Section shall apply to a determination of the nonresponsibility of a contractor or vendor.

B. Prior to awarding a contract, the City may determine that a contractor or vendor submitting a bid is nonresponsible for purposes of that bid. Before a determination of nonresponsibility is made there shall be a hearing by the Hearing Officer in accordance with the procedures stated in this Section.

C. The City Manager or designee shall act as Hearing Officer and shall conduct the hearing. Where the Board of Water Commissioners is the awarding authority, the Hearing Officer shall be the General Manager of the Water Department or designee.

At least fourteen (14) days prior to the hearing before the Hearing Officer, the Hearing Officer shall give written notice to the contractor or vendor which notice shall contain the evidence to be presented by the City relating to the issue of nonresponsibility and the date, time and location of the hearing.

D. At the hearing, the contractor and/or the contractor's attorney or the vendor and/or the vendor's attorney may submit documentary evidence and present witnesses. The City will submit into the record the evidence previously provided to the contractor or vendor and may present witnesses and offer rebuttal evidence. A recording of

the hearing may be made at the option of the City or the contractor or vendor. The Hearing Officer will decide the order of proceeding and any time limits on the presentation of evidence and witnesses. If the contractor or vendor or their attorney does not appear at the hearing, the Hearing Officer may proceed if proper notice to the contractor or vendor was given. Other than at the hearing, there shall not be any direct communication between the contractor or vendor or anyone acting on the contractor's or vendor's behalf and the Hearing Officer. All other communications to the Hearing Officer shall be in writing and shall be submitted to the City Clerk at least one (1) day prior to the date of the hearing, for delivery to the Hearing Officer.

E. After the hearing, the Hearing Officer will promptly prepare a decision on the issue of nonresponsibility and deliver it to the contractor or vendor and to the City Attorney. The decision will state the basis for the determination of nonresponsibility or responsibility. The determination shall be based on the fitness and capacity of the contractor or vendor to satisfactorily perform the obligations of the contract, whether or not the contractor or vendor is qualified to perform those obligations, whether or not the contractor or vendor is trustworthy, and such other bases as may be relevant. The Hearing Officer may consider, among other things:

(1) Any act or omission or pattern or practice of acts or omissions that negatively reflect on the contractor's or vendor's quality, fitness or capacity to perform;

(2) Any act or omission that indicates a lack of integrity or honesty;

(3) The making of a false claim against the City or any other public entity or engaging in collusion;

(4) The contractor's or vendor's financial capability to perform;

(5) The contractor's or vendor's experience with its sureties and insurance companies;

(6) The contractor's or vendor's ability to perform on time and on budget, either in the present or as performed in the past;

(7) Whether or not contractor or vendor has performed satisfactorily in the past on its contracts with the City or any other public entity, including, but not limited to, whether or not contractor or vendor has been in default under a contract with the City or any other public entity;

(8) The contractor's or vendor's safety record;

(9) The contractor's or vendor's history of claims, litigation, and termination or disqualification on public projects; and

(10) Contractor's or vendor's contract management skills, including, but not limited to, the use of scheduling tools, submission of schedules, compliance with prevailing wage rates, and certification of accurate payroll documents.

F. The City Clerk shall mail a copy of the decision to the contractor or vendor. The contractor or vendor shall have five (5) days to file a notice of appeal with the City Clerk. On receipt of such notice, the City Clerk shall set a time for a hearing on the appeal before the City Council and shall send written notice of the time of the appeal hearing to the contractor or vendor at least five (5) days prior to the hearing. The City Clerk shall set the time for the appeal hearing within fourteen (14) days after the City receives the notice of appeal but no sooner than five (5) days after the date shown on the notice to the contractor or vendor of the time of the appeal hearing. The City Clerk shall simultaneously send a copy of the decision of the Hearing Officer to the City Council.

If the Board of Water Commissioners is the awarding authority, the City Clerk shall immediately forward the notice of appeal to the General Manager of the Water Department who shall set the time for a hearing of the appeal before the Board of Water Commissioners and shall send written notice of the time of the appeal hearing to the contractor or vendor at least five (5) days prior to the hearing. The General Manager shall set the time for the appeal hearing on the date of the first meeting of the Board of Water Commissioners held after the General Manager receives the notice of appeal but which time is, nevertheless, at least five (5) days after the date shown on the notice to

the contractor or vendor of the time of the appeal hearing. The General Manager shall simultaneously send a copy of the decision of the Hearing Officer to the Board of Water Commissioners.

G. No new evidence or testimony may be presented by either the City or the contractor or vendor at the appeal hearing. The City Council or the Board of Water Commissioners, in its discretion, may limit the time allotted for an oral presentation by both the City and the contractor or vendor. At the conclusion of the appeal hearing, the City Council or the Board of Water Commissioners shall receive the decision of the Hearing Officer and either adopt the decision of the Hearing Officer or make its own finding on the issue of nonresponsibility for the purposes of the particular contract, and the City Clerk shall send a certified copy of the minute entry to the contractor or vendor with respect to decision of the City Council or the Secretary to the General Manager of the Water Department shall send a certified copy of the order of the Board to the contractor or vendor. Service of the minute entry or order shall be deemed made when it is deposited in the mail.

H. The decision by the City Council or the Board of Water Commissioners on appeal to find a contractor or vendor nonresponsible for a particular contract is solely within the discretion of the body acting on behalf of the City. (Ord. C-7805 § 1, 2002)

2.93.070 Hearing procedure on contractor's or vendor's debarment.

A. Notwithstanding anything to the contrary in this Code, the provisions of this Section shall apply to the debarment of a contractor or vendor.

B. The City may debar a contractor or vendor from submitting bids on future contracts even if that contractor or vendor has an existing contract with the City at the time a decision is made to debar the contractor or vendor from future bids. "Debarment" means that a contractor or vendor is prohibited from submitting a bid, from receiving a contract award, and from receiving a purchase order from the City.

C. Before a contractor or vendor is debarred there shall be a hearing by the Hearing Officer in accordance with the procedures stated in this Section.

D. The City Manager or designee shall act as Hearing Officer and shall conduct the hearing. Where the Board of Water Commissioners is the awarding authority, the Hearing Officer shall be the General Manager of the Water Department or designee.

At least fourteen (14) days prior to the hearing before the Hearing Officer, the Hearing Officer shall give written notice to the contractor or vendor which notice shall contain the evidence to be presented by the City relating to the issue of debarment and the date, time and location of the hearing.

E. At the hearing, the contractor and/or the contractor's attorney or the vendor and/or the vendor's Attorney may submit documentary evidence and present witnesses. The City will submit into the record the evidence previously provided to the contractor or vendor and may present witnesses and offer rebuttal evidence. A recording of the hearing may be made at the option of the City or the contractor or vendor. The Hearing Officer will decide the order of proceeding and any time limits on the presentation of evidence and witnesses. If the contractor or vendor or their Attorney does not appear at the hearing, the Hearing Officer may proceed if proper notice to the contractor or vendor was given. Other than at the hearing, there shall not be any direct communication between the contractor or vendor or anyone acting on the contractor's or vendor's behalf and the Hearing Officer. All other communications to the Hearing Officer shall be in writing and shall be submitted to the City Clerk at least one (1) day prior to the date of the hearing, for delivery to the Hearing Officer.

F. After the hearing, the Hearing Officer will promptly prepare a decision containing a determination to debar or not and deliver it to the contractor or vendor and to the City Attorney. The decision will state the basis for the determination on debarment. The determination shall be based

on the fitness and capacity of the contractor or vendor to satisfactorily perform the obligations of the contract, whether or not the contractor or vendor is qualified to perform those obligations, whether or not the contractor or vendor is trustworthy, and such bases as may be relevant. The Hearing Officer may consider, among other things:

(1) Whether or not the contractor or vendor has previously been found to be nonresponsible;

(2) The commission by the contractor or vendor of any act or omission or pattern or practice of acts or omissions that negatively reflects on the contractor's or vendor's quality, fitness or capacity to perform;

(3) The commission of any act or an omission that indicates a lack of integrity or honesty;

(4) The making of a false claim against the City or any other public entity or engaging in collusion;

(5) The contractor's or vendor's financial capability to perform;

(6) The contractor's or vendor's experience with its sureties and insurance companies;

(7) The contractor's or vendor's ability to perform on time and on budget, either in the present or as performed in the past;

(8) Whether or not contractor or vendor has performed satisfactorily in the past on its contracts with the City or any other public entity, including, but not limited to, whether or not contractor or vendor has been in default under a contract with the City or any other public entity;

(9) The contractor's or vendor's safety record;

(10) The contractor's or vendor's history of claims, litigation, and termination or disqualification on public projects; and

(11) Contractor's or vendor's contract management skills, including, but not limited to, use of scheduling tools, submission of schedules, compliance with prevailing wage rates, and certification of accurate payroll documents.

G. The City Clerk shall mail a copy of the decision to the contractor or vendor. The contractor or vendor shall have five (5) days to file a notice of appeal with the City Clerk. On receipt of such notice, the City Clerk shall set a time for a hearing on the appeal before the City Council and shall send written notice of the time of the appeal hearing to the contractor or vendor at least five (5) days prior to the hearing. The City Clerk shall set the time for the appeal hearing within fourteen (14) days after the City receives the notice of appeal but no sooner than five (5) days after the date shown on the notice to contractor or vendor of the time of the appeal hearing. The City Clerk shall simultaneously send a copy of the decision of the Hearing Officer to the City Council.

If the Board of Water Commissioners, the City Clerk shall immediately forward the notice of appeal to the General Manager of the Water Department who shall set the time for a hearing of the appeal before the Board of Water Commissioners and shall send written notice of the time of the appeal hearing to the contractor or vendor at least five (5) days prior to the hearing. The General Manager shall set the time for the appeal hearing on the date of the first meeting of the Board of Water Commissioners held after the General Manager receives the notice of appeal but which time is, nevertheless, at least five (5) days after the date shown on the notice to the contractor or vendor of the time of the appeal hearing. The General Manager shall simultaneously send a copy of the decision of the Hearing Officer to the Board of Water Commissioners.

H. No new evidence or testimony may be presented by either the City or the contractor or vendor at the appeal hearing. The City Council or the Board of Water Commissioners, in its discretion, may limit the time allotted for an oral presentation by both the City and the contractor or vendor. At the conclusion of the appeal hearing, the City Council or the Board of Water Commissioners shall receive the decision of the Hearing Officer and either adopt the decision of the Hearing Officer or make its own finding on the issue of nonresponsibility for the purposes of the particular contract, and the City Clerk shall send a certified copy of the minute entry to the contractor or vendor with respect to decision of the City Council or the Secretary to the General Manager of the

Water Department shall send a certified copy of the order of the Board to the contractor or vendor. Service of the minute entry or order shall be deemed made when it is deposited in the mail.

I. The decision by the City Council or the Board of Water Commissioners on appeal to debar a contractor or vendor is solely within the discretion of that body acting on behalf of the City. The City Council or Board of Water Commissioners shall determine the length of time that the contractor or vendor is debarred, which time period may not exceed three (3) years. (Ord. C-7805 § 2, 2002)

CHAPTER 2.96 JUDICIAL REVIEW OF ADMINISTRATIVE DECISIONS

2.96.010 Statute of limitations.

Unless otherwise specifically provided by statute or ordinance, the provisions of Section 1094.6 of the Code of Civil Procedure pertaining to judicial review of administrative decisions, shall be applicable to all adjudicatory administrative decisions of the City Council or any Board or Commission where a hearing is required. (Ord. C-5426 § 1, 1978: prior code § 2781)

CHAPTER 2.97 EMERGENCY RESPONSE COST RECOVERY

2.97.010 Definitions.

A. *"Expense of an emergency response"* means those costs incurred by the City of Long Beach in making any appropriate emergency response to the incident, and shall be comprised of all costs directly arising because of the response to the particular incident, including, but not limited to, the costs of providing police, firefighting, rescue, and emergency medical services at the scene of the incident, as well as the salaries of the personnel responding to the incident. (Ord. C-6428 § 1 (part), 1987)

2.97.020 Emergency response cost recovery program.

Pursuant to the authority vested in the City of Long Beach by State statute, each person who is under the influence of an alcoholic beverage or any drug, or the combined influence of an alcoholic beverage and any drug, whose negligent operation of a motor vehicle, boat, vessel, or aircraft caused by that influence proximately causes any incident resulting in an appropriate emergency response, or whose intentionally wrongful criminal act proximately causes any incident resulting in appropriate emergency response, shall pay to said City the expense of such an emergency response. In no event shall a person's liability under this Chapter exceed the maximum allowable under State statute, and all costs assessed pursuant to this Chapter 2.97 shall reasonably relate to the actual cost of the expense incurred by the City. (Ord. C-6428 § 1 (part), 1987)

2.97.030 Collection of costs.

The expense of an emergency response shall be charged against the person liable for the expenses under this Chapter. The charge constitutes a debt of that person to the City of Long Beach, and is collectible by said City in the same manner as in the case of an obligation under a contract, expressed or implied. (Ord. C-6428 § 1 (part), 1987)

CHAPTER 2.99 RECORDS REPRODUCTION COST RECOVERY

2.99.010 Duplication costs.

The City shall charge and collect the fees for the duplication of any record, paper or instrument in an amount consistent with applicable State law. (Ord. C-7365 § 1, 1995: Ord. C-6930 § 1 (part), 1991)

Title 3

REVENUE AND FINANCE

Chapter 3.04 Annual Budget Procedure

3.04.010 Purpose.
3.04.015 Fiscal year of City.
3.04.020 Preliminary information gathering.
3.04.030 Recommended budget—Submittal.
3.04.040 Recommended budget—Contents.
3.04.050 Recommended budget—Public availability.
3.04.060 Citizen participation.
3.04.070 Public hearings.
3.04.080 Study sessions.
3.04.090 Appropriations limit.
3.04.100 Adoption.
3.04.110 Appropriation ordinance.
3.04.120 Failure to adopt.
3.04.130 Budget adjustments—Transfers of appropriations.
3.04.140 Budget adjustments—Increases or decreases in appropriations.
3.04.150 Appropriations lapse.
3.04.160 Reports.

Chapter 3.08 Community Redevelopment Agency Administrative Fund

3.08.010 Created.
3.08.020 Funds deposited.
3.08.030 Use of funds.

Chapter 3.12 Deferred Compensation Fund

3.12.010 Created.
3.12.020 Source of funds.
3.12.030 Disbursements.

Chapter 3.16 Gas Revolving Fund

3.16.010 Created.
3.16.020 Use of funds.

Chapter 3.20 Imprest Cash Funds

3.20.010 Created/Purpose.
3.20.020 Administration.

Chapter 3.24 Redevelopment Revolving Fund

3.24.010 Created.
3.24.020 Funds deposited.
3.24.030 Use of funds.
3.24.040 Repayment to redevelopment revolving fund.

Chapter 3.28 Retirement and Social Security Fund

3.28.010 Created.
3.28.020 Deposit of funds.
3.28.030 Use of funds.

Chapter 3.32 Special Gas Tax Street Improvement Fund

3.32.010 Created.
3.32.020 Funds deposited.
3.32.030 Use of funds.

Chapter 3.36 Special Public Improvement Fund

3.36.010 Created.

Chapter 3.40 Warrants

3.40.010 Registration—Insufficient funds.
3.40.020 Bonds—Registration—Insufficient funds.
3.40.030 Cancellation.

Chapter 3.44 Checks

3.44.010 Cancellation time limit.
3.44.020 Lost or destroyed checks.
3.44.030 Dishonored checks.

Chapter 3.48 Claims and Refunds

3.48.010 City Attorney authority.
3.48.020 Cancellation of uncollectible delinquent accounts receivable and claims for damage to City property.
3.48.030 Refund—Payable when.
3.48.040 Refund—Conditions of payment.
3.48.050 Refund—Payee deceased.
3.48.060 Refund—Time limitation of payment.
3.48.070 Refund—Conflicting provisions.

Chapter 3.52 Bonds and Public Improvement Financing

Division I. Revenue Bonds

3.52.110 Issuance resolution—Required.
3.52.115 Projects authorized.
3.52.120 Issuance resolution—Adoption.
3.52.130 Sale and issuance of bonds.
3.52.140 Statutes adopted.
3.52.150 Construction.

Division II. Industrial Development Revenue Bonds

Subdivision 1. General Provisions and Definitions

3.52.210 Recitals.
3.52.212 Citation.
3.52.214 Findings and declarations.
3.52.216 Definitions.

Subdivision 2. Financing Industrial Development Facilities

3.52.220 Use of proceeds.
3.52.221 Application for participation.
3.52.222 Equal opportunity/affirmative action.
3.52.223 Standards and procedures for applications.
3.52.224 Application fees.
3.52.225 Financing assistance.
3.52.226 Cost controls.
3.52.227 Loan security.
3.52.228 Professional services.
3.52.229 Additional powers.

Subdivision 3. Bonds

3.52.230 Issuance.
3.52.231 Form of bonds.
3.52.232 Terms and conditions.
3.52.233 Lien and pledge.
3.52.234 Disclaimers of liability.
3.52.235 City purchase of bonds.
3.52.236 Rights of holders.
3.52.237 Refunding of bonds.
3.52.238 Validity.

Subdivision 4. Supplemental Provisions

3.52.240 Liberal construction.
3.52.242 Validity of proceedings.
3.52.244 Authority for issuance of bonds.
3.52.246 Alternative procedure.

Division III. Health Facilities Bonds

Subdivision 1. General Provisions and Definitions

3.52.312 Citation.
3.52.314 Declaration of necessity.
3.52.316 Definitions.

Subdivision 2. Financing Health Facilities

3.52.320 Loan for facility and refinancing or refunding.
3.52.321 Sale or lease of facility by City.
3.52.322 Recovery of costs and expenses by City.
3.52.323 Insurance or guarantee of payment.
3.52.324 Fixing rents, fees, rates, etc.
3.52.325 Deeds of trust or mortgages as security.
3.52.326 Employment of experts and consultants.
3.52.327 Do all things necessary and convenient.

Subdivision 3. Bonds

3.52.330 Issue limited obligation bonds.
3.52.331 Amount of bonds.
3.52.332 Type, form and sale of bonds.
3.52.333 Terms and conditions of bonds.
3.52.334 Pledge of revenues.
3.52.335 Liability of Council and officers.
3.52.336 Purchase of bonds by City.
3.52.337 Compelling performance.
3.52.338 Refunding bonds—Use of proceeds.
3.52.339 Independent validity of bonds.

Subdivision 4. Supplemental Provisions

3.52.340 Liberal construction.
3.52.341 Effect of omission or defect.
3.52.342 Authority.
3.52.343 Provisions of this Division are complete, alternative.

3.52.344 Inconsistencies with other statutes.
3.52.345 Supplemental City policies.
3.52.346 Partial invalidity.

Division IV. Long Beach Assessment District Bonds

Subdivision 1. General Provisions and Definitions

3.52.410 Citation of Division.
3.52.412 General.
3.52.414 Definitions.
3.52.415 Initiation of proceedings for conversion of electric or communication facilities.

Subdivision 2. Creating District, Resolution of Intention, Report and City Contribution

3.52.420 Resolution of intention.
3.52.421 Assessment of less than fee interest.
3.52.422 Authority to create assessment district—Territory includable.
3.52.423 Manner of description of district.
3.52.424 Proceedings in which description not required.
3.52.425 Call for report.
3.52.426 Requisites of report.
3.52.427 Consideration of report—Modification.
3.52.428 Authority for City or other governmental entities to contribute to cost.
3.52.429 Appropriation of contribution by installments.

Subdivision 3. Hearing and Notice

3.52.430 Time of hearing.
3.52.431 Notice of improvement—Posting.
3.52.432 Publication of notices.
3.52.433 Substantial compliance sufficient.
3.52.434 Notice to property owners.
3.52.435 Contents of notice to property owners.
3.52.436 Affidavit of Clerk.

Subdivision 4. Protest

3.52.440 Protests.
3.52.441 When further proceedings barred.
3.52.442 Majority protest.
3.52.443 Right of mortgagee or beneficiary to protest on certain acquisitions.
3.52.444 Protests—Confirmation of assessment.
3.52.445 Waiver of protest by unanimous consent.

Subdivision 5. Change of Work, Boundaries of Assessment District, Amounts of Assessments or Proceedings

3.52.450 Change of work, boundaries of assessment district, amounts of assessments or proceedings and construction of provisions.

Subdivision 6. Levying and Collecting the Assessment

3.52.460 Levying and collecting the assessment.

Subdivision 7. Assessment Bonds

3.52.470 Assessment bonds.

3.52.471 Provisions of Improvement Bond Act of 1915 excepted.

3.52.472 Section 8652 of Improvement Act of 1915 amended.

3.52.473 Section 8804 of Improvement Bond Act of 1915 amended.

3.52.474 Section 8806 of the improvement Bond Act of 1915 amended.

3.52.475 Section 8650 of the Improvement Bond Act of 1915 amended.

3.52.476 Previously initiated proceedings.

Subdivision 8. Urgency Proceedings

3.52.480 Urgency proceedings.

Subdivision 9. Miscellaneous

3.52.490 Rules of construction.

3.52.492 Resumption of hearings not regularly adjourned.

3.52.494 Nonexclusiveness of division.

3.52.496 Incorporation effect.

3.52.498 Necessary or convenient procedure authorized.

Division V. Special Tax Financing Improvement Procedures

Subdivision 1. General Provisions

3.52.511 Short title.

3.52.512 Municipal and State affairs—Authority conferred by Division—Applicability of laws.

3.52.513 Conflicting provisions—Severability.

3.52.514 Actions or determinations—Proceedings.

3.52.515 Definitions.

3.52.516 Establishment of a community facilities district to finance certain services.

3.52.517 Other financing powers of a community facilities district.

3.52.518 School facilities financed by a community facilities district—Cost sharing by State Allocation Board—Ownership transferred to State—Savings.

3.52.519 Transfer of funds—Use of money—Interest.

3.52.5110 Advances of funds or work in-kind—Acceptance by legislative body—Use—Repayment—Agreement—Conditions.

3.52.5111 Liberal construction of Division—Error—Irregularity, neglect or omission.

3.52.5112 Failure to receive notice, resolution, order, or other matter not affecting proceedings.

3.52.5113 Special tax—Property acquired by public entity through negotiated transaction or by gift or devise—Voluntary application of special tax.

3.52.5114 Special tax—Special assessment on property acquired by public entity through eminent domain.

3.52.5115 Application of Division—Municipal officials—Powers and duties.

3.52.5116 Joint community facilities agreement or joint exercise of powers agreement.

Subdivision 2. Proceedings to Create a Community Facilities District

3.52.521 Institution of proceeding—Request—Petition—Fee.

3.52.522 Prohibition of LAFCO from review, approval or disapproval of creation of or annexation or detachment of territory from a district.

3.52.523 Petition—Contents—Findings as to requisite number of signers.

3.52.524 Resolution of intention to establish district—Time for adoption.

3.52.525 Resolution of intention to establish district—Contents.

3.52.526 Report and estimate of costs by responsible officers—Part of hearing record.

3.52.527 Required notice of hearing.

3.52.528 Optional notice of hearing.

3.52.529 Protests—Interested persons or taxpayer.

3.52.5210 Written protest—Further proceedings to create district—Elimination of special tax or types of facilities or services from resolution of formation.

3.52.5211 Hearing—Continuances—Time limitation—Exception—Modification of resolution of intention—Determination to abandon or proceed with establishment of district.

3.52.5212 Adoption of resolution of formation establishing district—Contents—Finding concerning validity and conformity of prior proceedings.

3.52.5213 Special tax—Basis for apportionment.

3.52.5214 Noncontiguous areas—Alteration of boundaries.

3.52.5215 Boundaries of district—Inclusion of lands devoted to agricultural, timber or livestock uses.

3.52.5216 Establishment or changing appropriations limit—Election on propositions, adjustment.

3.52.5217 Special tax levy—Election—Voter qualifications—Ballots.

3.52.5218 Elections—Law governing.

3.52.5219 Ballot materials.

3.52.5220 Special tax levy—Effect of voter approval or disapproval.

3.52.5221 Application of California Streets and Highways Code with respect to special taxes—Filings.

3.52.5222 Special tax—Levy and apportionment.

Subdivision 3. Changes in Authorized Facilities, Services and Special Taxes

3.52.531 Types of facilities and services provided.

3.52.532 Resolution of consideration—Change in facilities, services and taxes.

3.52.533 Resolution of consideration—Form.

3.52.534 Notice of hearing.

3.52.535 Protests—Elimination from resolution—Continuation, hearing.

3.52.536 Dissolution of districts.

Subdivision 4. Annexation of Territory

3.52.541 Authorization.

3.52.542 Adoption of resolution of intention.

3.52.543 Resolution of intention—Contents.

3.52.544 Notice of hearing.

3.52.545 Protests.

3.52.546 Abandonment of proposal—Required number of written protests.

3.52.547 Continuance and duration of hearing—Abandonment of proceedings—Submission of special tax question to electors.

3.52.548 Addition of territory with full legal effect—Special tax levy.

3.52.549 Failure to receive approval of two-thirds of voters—Prohibition of further action.

Subdivision 5. Procedures for Levying

3.52.551 Ordinance—Tax rate and apportionment—Exemption of governmental properties and entities from special tax—Use of tax proceeds—Tax collection, penalties, etc.

3.52.552 Designation of office for special tax computation.

3.52.553 Actions or proceedings to attach, review, set aside, void, or annual levy of special tax or increase in special tax—Time for commencement—Time for perfection of appeal from final judgment.

3.52.554 Disclosure of the special tax.

3.52.555 Manner of fixing and collecting charges.

3.52.556 Use of charges for authorized facilities and services.

3.52.557 Notice of cancellation of special tax.

Subdivision 6. Bonds

3.52.561 Resolution to incur bonded indebtedness.

3.52.562 Inclusion of certain costs and estimated costs in proposed bonded indebtedness.

3.52.563 Notice of hearing on resolution.

3.52.564 Hearing.

3.52.565 Improvement area—Resolution designating—Application of proceedings.

3.52.566 Resolution—Bonded indebtedness.
3.52.567 Resolution to incur bonded indebtedness—Notice of election—Publication.
3.52.568 Elections pursuant to this Article—Laws and rules applicable.
3.52.569 Resolution relating to form, execution and issuance of bonds.
3.52.5610 Action to foreclosure liens—Cumulative remedy—Resolution to diligently pursue foreclosure action.
3.52.5611 Credits for delinquent taxes.
3.52.5612 Delinquent taxes, procedures.
3.52.5613 Foreclosures.
3.52.5614 Judgments.
3.52.5615 Errors.
3.52.5616 Signatures on bonds or coupons—Place bonds are payable.
3.52.5617 Special tax or charge for outstanding bonded debt.
3.52.5618 Action to determine validity of bonds or special tax levy.
3.52.5619 Sale of bonds.
3.52.5620 Force, value and use of bonds—Exemption from State taxation.
3.52.5621 Refunding bonds—Resolution.
3.52.5622 Refunding bonds—Resolution for issuance.
3.52.5623 Sale of refunding bonds.
3.52.5624 Amount of proceeds and investments in funding fund.
3.52.5625 Refunding bonds—Use of savings—Reduction of tax levy.
3.52.5626 Callable bonds.

Division VI. Structural Seismic Resistance and Structural Repair Assessment District Formation

Subdivision 1. Definitions and General Provisions

3.52.570 Description by reference to plan or map filed and open to public inspection.
3.52.571 Construction governed by definitions.
3.52.572 Selection of newspaper.
3.52.573 Time of publication.
3.52.574 Time and place of posting.
3.52.575 Publication or posting of notice, resolution, order or other matter—Clerk—Validation of proceedings.
3.52.576 Failure to mail or receive notice—Validation of proceedings.
3.52.577 Notice—Publication of notice, order—Necessity—Validity.
3.52.578 Compliance with Article XIII D of California Constitution.

Subdivision 2. Procedures for Forming Assessment Districts and Levying Assessments

3.52.578.1 Power to construct, acquire, install improvements—Acquisition of land and easements.

3.52.579 Resolution of Intention.
3.52.580 Payment of cost and expenses out of General Fund authorized.
3.52.581 Call for report.
3.52.582 Contents of report.
3.52.583 Allowance for interest.
3.52.584 Loans to special funds.
3.52.585 Consideration of report—Modification.
3.52.586 Public hearing of protests.
3.52.587 Waiver of protest hearing and notices.
3.52.588 Notice of passage of Resolution of Intention—Posting.
3.52.589 Publication of notice.
3.52.590 Contents of notice.
3.52.591 Effect of failure to post.
3.52.592 Notice to Owners.
3.52.593 Contents of notice to Owners.
3.52.594 Affidavit of City Clerk or Assessment Engineer.
3.52.595 Filing of protests—Evidence of property ownership—Duties of City Clerk or Assessment Engineer.
3.52.596 Waiver of right to protest.
3.52.597 Correction of error or informality.
3.52.598 Majority protest—Withdrawal of protests.
3.52.599 Majority protest—Determination of ownership of signers—Evidence considered.
3.52.600 Public hearing; confirmation of assessment.
3.52.601 Authority for City Council to make changes in Assessment District, assessments or proceedings.
3.52.602 Changes to be made on notice and hearing—Exceptions.
3.52.603 Resolution—Description of proposed changes—Reference to maps, plats, etc.—Publication.
3.52.604 Proposals to include additional territory or to increase assessment—To whom copy to be mailed.
3.52.605 Written objection to proposed changes—Filing with City Clerk—Hearing and determination—Jurisdiction to order changes—Conclusiveness of order.
3.52.606 Proceedings when supplemental assessment deemed necessary—Credit.
3.52.607 Limitations.
3.52.608 Contest of validity.
3.52.609 Diagram and assessment—Transmission and recordation.
3.52.610 Recording diagram and assessment.
3.52.611 Recordation of notice of assessment.
3.52.612 Notice to Owners of recordation of assessment.
3.52.613 Annual payment of assessments—Amount—Delinquency—Penalty.

3.52.614 Interest on unpaid assessments—Computation.

3.52.615 Auditor's record of unpaid assessment—Collection costs.

3.52.616 Registration expenses—Pro rata share entered in assessment roll annually—Inclusion of estimated expenses in assessment and amount of Bonds.

3.52.617 County collection for City—Report—Expenses.

3.52.618 Payment under protest.

3.52.619 Land not separately assessed on tax roll.

3.52.620 Advance collection to meet interest payments.

3.52.621 Amounts to be paid by Owner.

3.52.622 Assessment prepayment subaccount of Bond redemption fund—Deposits—Disbursements.

3.52.623 Tender of Bond in payment of assessment; tenders at foreclosure sales.

3.52.624 Insufficiency of assessment—Payment of deficit from General Fund or supplemental assessment.

3.52.625 Supplemental assessment.

3.52.626 Credit to assessment and supplemental assessment.

3.52.627 Powers of City Council.

3.52.628 Sale—No right of redemption.

3.52.629 Effect of certificate of sale or deed.

3.52.630 Purchase by the City.

3.52.631 Assignment of City's rights.

3.52.632 [Intentionally omitted].

3.52.633 [Intentionally omitted].

3.52.634 Purchase subject to unpaid assessments.

3.52.635 City payment of taxes—Temporary transfer to redemption fund.

3.52.636 Cumulative remedy—Time for ordering commencement of action—Covenant to commence and prosecute action; reduction of assessments.

3.52.637 Costs of action—Attorney's fee.

3.52.638 Judicial sale—Amount of payment—City bidding—City as purchaser—Attorney fees and costs—Applicable law.

3.52.639 Credit upon assessment roll—Release of Tax Collector—Costs—Future assessments.

3.52.640 Dismissal of foreclosure action—Required payments; assessment amnesty program.

3.52.641 Action in name of City—Time for commencement—Complaint.

3.52.642 Calculation of penalties, costs and interest.

3.52.643 Failure of property to sell at minimum price—Petition to modify judgment—Notice—Hearing—Determinations—Purchase by Owners or holders of security interests prohibited—Attorney fees and costs.

3.52.644 Assessment as trust fund for Bonds.

3.52.645 Assessment liens—Priority—Continuance—Notice.

3.52.646 Priority of reassessment and refunding assessment lien—Supplemental assessment.

3.52.647 Unmatured installments, interest and penalties secured by lien not within terms of general warranty of title.
3.52.648 Reassessment.
3.52.649 Reassessment as trust fund for Bonds—Issuance of new Bonds.
3.52.650 Calling in original issue—Issuance of new Bonds.
3.52.651 Ratable issuance to holders of original Bonds.
3.52.652 Apportionment of assessment.
3.52.653 Filing of report and amended assessment.
3.52.654 Time and place of hearing—Notice.
3.52.655 Protests—Hearing—Finality of decision.
3.52.656 Filing amended assessment.

Subdivision 3. Procedures for the Sale and Issuance of Bonds

3.52.657 System for issuance of Bonds.
3.52.658 Power of City Council.
3.52.659 Resolution of Intention—Contents.
3.52.660 Determination that Bonds not be subject to refunding until specified date.
3.52.661 Refunding Bonds.
3.52.662 Description of Bonds in assessment.
3.52.663 Form of Bond declaration.
3.52.664 List of unpaid assessments.
3.52.665 Determination of amount of assessments payable—Delivery of Bonds.
3.52.666 Disposition of the Bonds.
3.52.667 Incidental expenses.
3.52.668 Effect of inability to issue the Bonds secured by particular unpaid assessments.
3.52.669 Principal and interest payments.
3.52.670 Date and division of issue—Classification of assessments as to maturity.
3.52.671 Maximum maturity date.
3.52.672 Redemption—Redemption premium.
3.52.673 Bonds—Signatures—Seal.
3.52.674 Effect of issuance.
3.52.675 Authority to issue Bonds.
3.52.676 Unpaid assessments—Collection—Costs—Delinquency penalties and interest.
3.52.677 Interest on unpaid assessments.
3.52.678 Variable interest rate on Bonds.
3.52.679 Conversion of Bonds to fixed interest rate.
3.52.680 Repurchase of Bonds—Costs.
3.52.681 Notice of assessment—Unpaid assessments subject to variable interest rate.
3.52.682 Place of payment.

3.52.683 Redemption fund.
3.52.684 Bond register—Cancellation of paid Bonds.
3.52.685 Resolution—Issuance—Maximum maturity date.
3.52.686 Source of principal and interest payments.
3.52.687 Purposes—Use of proceeds.
3.52.688 Amount of issuance.
3.52.689 Resolution—Call and redemption prior to maturity.
3.52.690 Manner of issuance and sale.
3.52.691 Contents of notes and resolution.
3.52.692 Resolution—Remedy—Anticipated Bonds not sold at time or in amount specified—Default.
3.52.693 Advancement of Bond maturity—Payment.
3.52.694 Notice of advanced maturity—Service or mailing.
3.52.695 Surrender—Payment—Premium—Failure to surrender for payment.
3.52.696 Cost of notice of advanced maturity.
3.52.697 Notice covering more than one Bond.
3.52.698 Tender of other Bonds for cancellation.
3.52.699 Selection of Bonds for advanced maturity.
3.52.700 Manner of selecting Bonds for retirement.
3.52.701 Alternative procedures.
3.52.702 Withholding payments—Report to City Council.
3.52.703 Hearing—Date—Notice.
3.52.704 Proportionate payments.
3.52.705 Payment of proportionate amounts—Interest—Premium—Notice to holders of unsurrendered Bonds.
3.52.706 Supplemental hearings.
3.52.707 Temporary redemption fund deficiency—Priority for payment.
3.52.708 Notice to holders of registered Bonds—Failure to present for payment.
3.52.709 Hearing on supplemental assessment.
3.52.710 Notice of hearing—Publication—Posting.
3.52.711 Hearing—Levy of supplemental assessment.
3.52.712 Costs of notice and supplemental assessment—Recordation of order levying assessment—Lien—Collection.
3.52.713 Collection in annual installments—Advance payment of full amount.
3.52.714 Disposition of proceeds.
3.52.715 Disposition of surplus.
3.52.716 Creation—Amount.
3.52.717 Cash or advance payment of assessment—Reduction of assessment levied on parcel—Ratio.

3.52.718 Transfer of sale proceeds to fund—Trust fund.
3.52.719 Availability of fund for transfer to redemption fund—Reimbursement from proceeds of redemption or sale.
3.52.720 Payment of assessment—Transfer to redemption fund of amount equal to assessment reduction.
3.52.721 Adequacy of fund to retire Bonds—Discontinuance of principal and interest collection—Liquidation—Disposition of excess.
3.52.722 Temporary investments.
3.52.723 Use of fund—Assessment credit—Advance Bond retirement.
3.52.724 Errors in computation of amount due.
3.52.725 Examination by Superintendent of Banks—Certification of legal investment.
3.52.726 Judicial sale procedures.

Chapter 3.56 Real Property Transfer Tax

3.56.010 Title.
3.56.020 Imposed—Rate.
3.56.030 Administration.
3.56.040 Payment required.
3.56.050 Exemption—Governmental entities.
3.56.060 Exemption—Security instruments.
3.56.070 Exemption—Partnership transactions.
3.56.080 Exemption—Plans of reorganization or adjustment.
3.56.090 Exemption—Securities and Exchange Commission.
3.56.100 Refunds.

Chapter 3.60 Sales and Use Tax

3.60.010 Title.
3.60.020 Purpose.
3.60.030 Amendments to statutes adopted.
3.60.040 State agreement—Operative date conditions.
3.60.050 Sales tax.
3.60.060 Use tax.
3.60.070 Operative date of exemptions.
3.60.080 Existing sales and use tax suspended.
3.60.090 Enjoining collection prohibited.
3.60.095 Credit.

Chapter 3.62 Transactions and Use Tax

3.62.010 Purpose.
3.62.020 Contract With State.

3.62.030 Transactions Tax Rate.
3.62.040 Place of Sale.
3.62.050 Use Tax Rate.
3.62.060 Adoption of Provisions of State Law.
3.62.070 Limitations on Adoption of State Law and Collection of Use Taxes.
3.62.080 Permit not Required.
3.62.090 Exemptions and Exclusions.
3.62.100 Amendments.
3.62.110 Enjoining Collection Forbidden.
3.62.120 Duration of Tax.
3.62.130 Citizens' Advisory Committee.
3.62.140 Effect of Los Angeles County Measures "A" and "H" and of future county transactions and use tax measures on this ordinance.

Chapter 3.64 Transient Occupancy Tax

3.64.010 Definitions.
3.64.020 Administration.
3.64.030 Imposed.
3.64.035 General Purpose Tax imposed.
3.64.040 Exemptions.
3.64.045 Credit.
3.64.050 Collection.
3.64.055 Refunds.
3.64.060 Credit cards.
3.64.070 Returns and remittances.
3.64.080 Records.
3.64.085 Tax clearance certificate.
3.64.090 Cessation of business.
3.64.100 Special advertising and promotion fund.
3.64.110 Failure to collect or pay and notice of determination.
3.64.112 Request for hearing with Director.
3.64.115 Appeal of final notice of determination.
3.64.120 Delinquent payment penalty.
3.64.130 Action to collect tax and enforcement of lien.
3.64.150 Enjoining collection forbidden.
3.64.160 Assessments, presumption and time limit for action to collect unpaid taxes.

Chapter 3.68 Utility Users Tax

3.68.010 Utility users tax—Tax rate.
3.68.020 Definitions.
3.68.030 Electricity users tax.
3.68.040 Gas users tax.
3.68.050 Telephone users tax.
3.68.060 Water users tax.
3.68.065 Segregation of nontaxable charges.
3.68.070 Exemption—Constitutional violation.
3.68.075 Effect of State and federal authorization.
3.68.080 Exemption—Application.
3.68.090 Refund in lieu of exemption.
3.68.100 Collection.
3.68.110 Returns and remittances.
3.68.120 Records.
3.68.130 Delinquent payment penalty.
3.68.140 Failure to pay—Administrative remedy.
3.68.150 Collection action.
3.68.160 Refunds.
3.68.170 Independent audit.

Chapter 3.72 Tennis Trust Account

3.72.010 Created.

Chapter 3.76 Commercial and Industrial Land Bank

3.76.010 Established.

3.76.020 Land bank fund.

Chapter 3.80 Business License Tax

Division I. Purpose and Definitions

3.80.110 Purpose of Chapter provisions.

3.80.120 Definitions.

3.80.130 Average number of employees.

3.80.133 Business.

3.80.136 Business license or license.

3.80.140 Business license tax.

3.80.143 Calendar quarter.

3.80.146 Classifications of businesses.

3.80.148 Director.

3.80.150 Employee.

3.80.153 Engaged in business.

3.80.156 Fixed place of business.
3.80.160 Gross receipts.
3.80.163 Licensee.
3.80.166 New business.
3.80.170 Person.
3.80.180 Unique businesses.

Division II. Imposition of Business License Tax

3.80.210 License and tax payment required.
3.80.213 Tax on contract construction.
3.80.216 Tax on manufacturing.
3.80.220 Tax on miscellaneous businesses.
3.80.221 Tax on oil production.
3.80.222 Police and Fire Public Safety Oil Production Act.
3.80.223 Oil business—Unit operations.
3.80.224 Special tax on oil production—Use of proceeds.
3.80.225 Special Police and Fire Public Safety Oil Production Act fund.
3.80.226 Tax on professions.
3.80.227 Independent audit.
3.80.230 Tax on recreation and entertainment.
3.80.233 Tax on rental of residential property.
3.80.236 Tax on rental of nonresidential property.
3.80.240 Tax on retailing.
3.80.243 Tax on services.
3.80.246 Tax on vending operations.
3.80.250 Tax on wholesaling.
3.80.253 Taxes on selected individual businesses.
3.80.256 Apportionment of payment of tax.
3.80.260 Reserved.
3.80.261 Marijuana Businesses.

Division III. Exclusions and Exemptions

3.80.310 Exclusions designated.
3.80.320 Exemption—Religious and charitable organizations.
3.80.323 Exemption—Cultural pursuits, minors doing yard work.
3.80.326 Exemption—Disabled veteran.
3.80.327 Exemption—Private family daycare home.
3.80.330 Exemptions—Applications and conditions of issuance.
3.80.340 Exemptions—Grounds for revocation, notice and rights of hearing and appeal.

Division IV. Administration, Enforcement and Penalties

Subdivision 1. General

3.80.410 Duties of Director of Financial Management and Chief of Police.

Subdivision 2. Application and Administration

3.80.420.1 Application—Required.
3.80.420.5 Separate license for each place of business—Exception for booth selling and independent contractors.
3.80.420.6 Alternative treatment for multiple businesses at one location.
3.80.420.7 Declaration for issuance of first license.
3.80.420.8 Declaration for license renewal.
3.80.421.1 Application—Investigation.
3.80.421.5 Application—Rejection.
3.80.421.6 Appeals.
3.80.421.7 Due dates of licenses.
3.80.422 Delinquent date—Penalty.
3.80.422.5 Licenses not transferable.
3.80.423 Use of license by unlicensed person.
3.80.424 Change of location.
3.80.425.1 Evidence of doing business.
3.80.425.5 Display.
3.80.426.1 Records inspection.
3.80.426.5 Mistakes not to prevent collection of proper amount.
3.80.427.1 Refund—Application.
3.80.427.5 Refund—Grounds.
3.80.429.1 Suspension or revocation.
3.80.429.5 Appeal of license revocation.
3.80.429.7 Confidentiality.

Subdivision 3. Rulemaking

3.80.430 Rules and regulations.
3.80.435 Determination of classification of business.

Subdivision 4. Enforcement

3.80.440 Assessments, presumption and statute of limitations.
3.80.441 License tax deemed debt to City.
3.80.442 Deficiency determinations.
3.80.443 Tax assessment—Authorized when—Nonpayment—Fraud.

3.80.444 Tax assessment—Notice requirements.
3.80.445 Tax assessment—Hearing—Application and determination.
3.80.446 Violation deemed misdemeanor—Penalty.
3.80.447 Conviction for Chapter violation—Taxes not waived.

Subdivision 5. Adjustment for Inflation/Deflation

3.80.451 Inflation/deflation.

Division V. License Term and Transitional Provisions

3.80.510 Operative date.
3.80.520 Term of license.
3.80.530 Proration of annual license for new business.

Chapter 3.90 Development Permit Center Surcharge

3.90.010 Purpose.
3.90.020 Surcharge.

Chapter 3.91 Surcharge on Building, Zoning and Related Permit Fees

3.91.010 Purpose.
3.91.020 Surcharge.

Chapter 3.92 Housing Trust Fund

3.92.010 Purpose and intent.
3.92.020 Definitions.
3.92.030 Establishment of the Long Beach Housing Trust Fund and trust fund account.
3.92.040 Purpose and use of housing trust fund moneys.
3.92.050 Term of affordability.
3.92.060 Program plan.
3.92.070 Funding of supporting services.
3.92.080 Publication of program documents.
3.92.090 Annual report.
3.92.100 Financial management.

Chapter 3.94 Budget Stabilization ("Rainy Day") Fund

3.94.010 Establishment of the fund.
3.94.020 Purpose.
3.94.030 Transfers into and from the Budget Stabilization Fund.

CHAPTER 3.04 ANNUAL BUDGET PROCEDURE

3.04.010 Purpose.

The purpose of this Chapter is to establish procedures for the consideration and adoption of the annual City budget by the City Council; to specify the type of information to be included in the City Manager's recommended budget; to require periodic reports to the City Council on the status of budget implementation; and to provide opportunities for meaningful citizen involvement in the annual budget process. Its provisions are intended to enable the City Council to establish budget policies and guidelines prior to the City Manager's submittal of the recommended budget and to establish priorities for programs within the adopted budget. (Ord. C-5669 § 1 (part), 1981: prior code § 2670)

3.04.015 Fiscal year of City.

A. Pursuant to Section 1700 of the City Charter and based upon the City Manager's recommendation, the fiscal year periods for the City in all matters of accounting, receipts, expenditures, obligations, estimates and appropriations are hereby prescribed as follows:

1. Through June 30, 1995, the fiscal year shall commence on July 1 of each year and end on June 30 of the following year.

2. Beginning on July 1, 1995, a transitional fiscal year shall commence on July 1, 1995, and end on September 30, 1996.

3. Beginning on October 1, 1996, and each year thereafter, the City's fiscal year shall commence on October 1 of each year and end on September 30 of the following year.

B. All accounting will be maintained based on applicable Generally Accepted Accounting Principles (GAAP) or as required by law, and shall be published for each fiscal year prescribed herein.

C. The City Manager and/or his designees shall provide by regulations, orders, instructions, and guidelines for the orderly transition by all offices, departments, agencies and instrumentalities of the City from the use of the fiscal year in effect on the date of enactment of this Section to the use of the new fiscal year prescribed by this Section. The City Manager shall prepare and submit to the City Council any such additional proposed legislation the City Manager may consider necessary to implement and accomplish said transition. (Ord. C-7300 § 1, 1994)

3.04.020 Preliminary information gathering.

Not less than one hundred twenty (120) days prior to the beginning of each fiscal year the City Manager shall file a report with the City Council which prescribes the schedule and procedure by which all City departments shall submit budget requests. The City Manager shall also include in such report an analysis of the City's fiscal condition, budget issues for the forthcoming fiscal year, and recommendations, if any, for the establishment of budget policies and guidelines by the Council. Prior to establishing such general policies and guidelines the City Council shall hold one (1) or more public hearings to obtain public comments on the City's program needs and priorities. (Ord. C-5669 § 1 (part), 1981: prior code § 2670.1)

3.04.030 Recommended budget—Submittal.

Not less than forty-five (45) days prior to the beginning of each fiscal year, the City Manager shall submit to the City Council a recommended budget and budget message for the forthcoming year. Said recommended budget shall comply with the policies and guidelines established pursuant to Section 3.04.020. The City Manager shall also prepare a separate briefing document summarizing the recommended budget which shall be made available at no charge to the public. (Ord. C-5669 § 1 (part), 1981: prior code § 2670.2)

3.04.040 Recommended budget—Contents.

The City Manager's recommended budget shall include:

A. A comprehensive summary of the proposed expenditures;

B. Estimates of anticipated revenues from all sources;

C. Comparative historical data on revenues and expenditures for the latest and the immediately preceding fiscal year;

D. Detailed budget proposals for each program identifying the nature and purpose of the program, the proposed expenditures by major category of cost, the sources of funding for those expenditures, and the number of personnel positions requested;

E. Such supporting schedules as are necessary to determine the City's appropriations limit for the forthcoming fiscal year pursuant to Article XIII B of the California Constitution;

F. A proposed five (5) year capital improvement program that projects which capital improvements are most needed, where they should be located, when they should be provided, and how they should be financed;

G. Provision for the financing of capital projects expected to be begun, continued or completed in the forthcoming fiscal year. (Ord. C-5669 § 1 (part), 1981: prior code § 2670.3)

3.04.050 Recommended budget—Public availability.

The City Manager's recommended budget, budget message and supporting schedules shall be a public record in the office of the City Clerk open to public inspection and shall be maintained at all branch libraries of the City for the use of interested persons. Copies of budget documents shall be available for sale at the office of the City Clerk for actual cost of reproduction. (Ord. C-5669 § 1 (part), 1981: prior code § 2670.4)

3.04.060 Citizen participation.

It shall be the policy of the City Council to encourage active citizen participation in the annual budget process. In addition to public hearings required by this Chapter, individual Councilmembers are encouraged to conduct such neighborhood meetings on the recommended budget as are necessary to assist the Councilmembers in representing the interests of the citizens of Long Beach. Whenever additional public hearings on fiscal matters are required by State or federal law, the City Council shall combine such hearings with regular budget hearings, to the extent possible, in order to ensure complete and comprehensive consideration of the City's fiscal plan. (Ord. C-5669 § 1 (part), 1981: prior code § 2670.5)

3.04.070 Public hearings.

Before adoption of the budget, the City Council shall hold one (1) or more public hearings on the City Manager's recommended budget. At the meeting at which the budget message and recommended budget are submitted as provided in Section 3.04.030, the City Council shall determine the place and time of the public hearings on the budget, and shall cause a notice of the hearings to be published in accordance with law. At such public hearings all interested persons shall be given an opportunity to be heard regarding program priorities, revenue estimates, proposed expenditures or any other matter relating to the adoption of the budget. (Ord. C-5669 § 1 (part), 1981: prior code § 2670.6)

3.04.080 Study sessions.

From time to time the City Council may conduct study sessions on the recommended budget which shall be open to the public and duly noticed in accordance with Section 54950 et seq., of the California Government Code. (Ord. C-5669 § 1 (part), 1981: prior code § 2670.7)

3.04.090 Appropriations limit.

Prior to the beginning of each fiscal year, the Council shall, by resolution, establish the appropriations limit for the forthcoming fiscal year pursuant to Article XIII B of the California Constitution. Such appropriations limit may thereafter be revised from time to time as provided by law. (Ord. C-5669 § 1 (part), 1981: prior code § 2670.8)

3.04.100 Adoption.

Following the public hearing required by Section 3.04.070, the City Council may change the recommended budget except as to expenditures required by law; provided, however, that if the Council increases the total proposed expenditures

from any fund, such increase shall not exceed the estimated resources available for that fund, nor shall total appropriations exceed the appropriations limit established pursuant to Section 3.04.090. Said budget shall thereafter be adopted as the official budget for the forthcoming fiscal year. (Ord. C-5669 § 1 (part), 1981: prior code § 2670.9)

3.04.110 Appropriation ordinance.

Prior to the start of the fiscal year, the City Council shall pass an ordinance authorizing expenditures in conformance with the adopted budget and the appropriations limit established pursuant to Section 3.04.090. (Ord. C-5669 § 1 (part), 1981: prior code § 2670.10)

3.04.120 Failure to adopt.

Should the City Council fail to adopt a budget and appropriation ordinance prior to commencement of a fiscal year, the City Manager's recommended budget shall be deemed to be the budget for that year, and expenditures shall be made in accordance therewith. (Ord. C-5669 § 1 (part), 1981: prior code § 2670.11)

3.04.130 Budget adjustments—Transfers of appropriations.

A. The City Council, upon written recommendation of the City Manager, may authorize the transfer of any portion of any unencumbered appropriation balance from one (1) department to another department financed by the same fund. If the transfer affects the appropriations for the department of an elected official or other department not under the City Manager's administrative jurisdiction, the concurrence of the department head in the recommendation for transfer shall be required.

B. The City Manager may at any time authorize transfers within a department or program for which the City Manager is administratively responsible. Transfers of appropriations within other departments of the City may be authorized by the heads of such departments. (Ord. C-5669 § 1 (part), 1981: prior code § 2670.12)

3.04.140 Budget adjustments—Increases or decreases in appropriations.

All budget increases or decreases for a fund shall be approved by the City Council; provided, that appropriations may never exceed estimated resources available or the allowable appropriations limit. (Ord. C-5669 § 1 (part), 1981: prior code § 2670.13)

3.04.150 Appropriations lapse.

All appropriations shall lapse at the end of the fiscal year to the extent that they shall not have been expended or lawfully encumbered. (Ord. C-5669 § 1 (part), 1981: prior code § 2670.14)

3.04.160 Reports.

As soon as possible after the end of each quarter, the City Manager shall report to the City Council on the status of the budget, comparing estimated revenues to actual receipts and comparing authorized appropriations to actual expenditures and encumbrances. (Ord. C-5669 § 1 (part), 1981: prior code § 2670.15)

CHAPTER 3.08 COMMUNITY REDEVELOPMENT AGENCY ADMINISTRATIVE FUND*

3.08.010 Created.

In compliance with the California Redevelopment Law there is created and established a special fund to be known as the community redevelopment agency administrative fund. (Prior code § 2613)

3.08.020 Funds deposited.

Such sums of money that may be appropriated by the City Council deemed necessary for the administrative expense and overhead of the Redevelopment Agency shall be paid into the fund created and established in this Chapter. (Prior code § 2613.1)

***State law reference**—Provisions on the community redevelopment agency administrative fund, Health and Safety Code § 33610 et seq.

3.08.030 Use of funds.

The money deposited in the fund shall be used to meet the administrative expenses and overhead of the Redevelopment Agency. (Prior code § 2613.2)

CHAPTER 3.12 DEFERRED COMPENSATION FUND

3.12.010 Created.

A deferred compensation fund is created and established which shall be continued in existence as a revolving fund and maintained on a continuing basis from year to year. This fund is created and established pursuant to the authority of the Charter of the City. (Ord. C-5586 § 1, 1980)

3.12.020 Source of funds.

All compensation, receipt of which has been deferred pursuant to participation agreements between the City and its employees, shall be transferred from the general purpose fund, or any other City funds from which compensation is paid City employees, to the deferred compensation fund, on the date compensation is due and payable to City employees, or as soon thereafter as is practicable. (Ord. C-5586 § 2, 1980)

3.12.030 Disbursements.

There shall be paid from the deferred compensation fund such sums, in such manner and to such persons or entities, as provided in the City's deferred compensation plan and the participation agreements between the City and its participating employees. (Ord. C-5586 § 3, 1980)

CHAPTER 3.16 GAS REVOLVING FUND*

3.16.010 Created.

Pursuant to the City Charter there is created and established a revolving fund to be known as the gas revolving fund, the moneys of which shall not be subject to transfer at the close of a fiscal year. The money in such fund shall be transferred thereto by the City Treasurer from the gas revenue fund in accordance with the provisions of this Chapter. There shall not be in excess of five thousand dollars ($5,000.00) in the gas revolving fund so transferred. The specific amount of money in the gas revolving fund equal to, or less than, said sum shall be reasonably determined by the City Treasurer from time to time in accordance with the estimated demands upon such fund pursuant to the requirements of Section 3.16.020. The City Treasurer shall transfer to the gas revolving fund from the gas revenue fund money in accordance with such determination. The gas revolving fund shall be administered by an employee in the Commercial Services Division of the Financial Management Department holding the position of cashier and designated by the Supervisor of said Division. (Ord. C-5852 § 1, 1982: prior code § 2611)

3.16.020 Use of funds.

A. The moneys in the gas revolving fund shall be used solely for the following purposes:

1. For making change in connection with collections of the Gas Department;

2. For making refunds of money received in overpayment of gas bills or assessments levied for services rendered by the Gas Department;

3. For refunding meter deposits made by customers of the Gas Department to guarantee payment of gas bills or other refunds proper to be made from the gas sundry deposits fund and gas meter deposit fund;

4. For reimbursement of cash collected by employees of the Commercial Services Division of the Financial Management Department which, at a later date, has been determined to be counterfeit by the U.S. Treasury;

5. For fees and expenses incurred in court actions initiated by the Commercial Services Division of the Financial Management Department.

B. Reimbursement to the gas revolving fund shall be made monthly by requisition and demand on the gas revenue fund for all expenditures made from the gas revolving fund during the preceding calendar month for purposes authorized by the

*__Charter reference__—Charter provisions on revenue and taxation generally, and on the gas revolving fund, see the City Charter.

Subsections A.2, 4, 5 and 6 of this Section, and reimbursement to the gas revolving fund shall be made monthly by requisition and demand, or by check or otherwise, on the gas sundry deposits fund or gas meter deposit fund for all expenditures from the gas revolving fund during the preceding calendar month authorized by Subdivision A.3 of this Section. All expenditures and uses of money in the gas revolving fund shall be fully accounted for daily by receipts, sales tickets or other supporting evidence thereof. The Director of the Financial Management Department is the authorized person to request reimbursement to this fund. (Ord. C-5852 § 2, 1982: prior code § 2611.1)

CHAPTER 3.20 IMPREST CASH FUNDS

3.20.010 Created/Purpose.

There is established for all City departments, including the Water and Harbor Departments, imprest cash funds to effect economies in the processing of nominal City expenditures, subject only to advance approval by the City Auditor of the procedures, amount and general purpose of such funds. (Ord. C-6169 § 1, 1985: Ord. C-5277 § 1, 1977: prior code § 2770)

3.20.020 Administration.

Subject to the advance approval by the City Auditor, each appointing authority shall determine the amount, purposes and uses of the imprest cash fund for each department of the City under the control of said appointing authority, and the City Manager is authorized to promulgate, by administrative regulation, all necessary administration and accounting procedures for disbursing, reimbursing and controlling all imprest cash funds. (Ord. C-6169 § 2, 1985: prior code § 2770.1)

CHAPTER 3.24 REDEVELOPMENT REVOLVING FUND*

3.24.010 Created.

Pursuant to the California Redevelopment Law, there is created and established a special fund to be known as the redevelopment revolving fund. (Ord. C-5366 § 1 (part), 1977: prior code § 2614)

3.24.020 Funds deposited.

For the purpose of raising money to be deposited in the redevelopment revolving fund, the City Council may appropriate money or the City may issue and sell its general obligation bonds. After an initial appropriation, any future appropriations made by the City Council shall be made a part of its annual budget process. (Ord. C-5366 § 1 (part), 1977: prior code § 2614.1)

3.24.030 Use of funds.

Any money in the redevelopment revolving fund may be paid to the Redevelopment Agency of the City upon such terms and conditions as the City Council may prescribe for use in any of the redevelopment projects within the City and for any of the following purposes:

A. Deposit in a trust fund to be expended for the acquisition of real property in a project area;

B. The clearance, aiding and relocation of site occupants and preparation of any project area for redevelopment;

C. Any expenses necessary or incidental to the carrying out of the redevelopment plan which has been adopted by the City Council. (Ord. C-5366 § 1 (part), 1977: prior code § 2614.2)

3.24.040 Repayment to redevelopment revolving fund.

For purposes of this Chapter, the Redevelopment Agency of the City shall maintain accurate and current records of expenditures within or for the benefit of each of its redevelopment projects. All money expended from this fund as specified in this Chapter shall be returned to the fund as soon as money becomes available to the Redevelopment Agency for such purposes as determined by the Redevelopment Agency of the City from tax increment funds, from the sale of tax allocation bonds or other funds which become available to the Redevelopment Agency. All money received by the agency from the sale, lease or encumbering of property acquired with money from this fund in

---

***Cross reference**—Provisions on the redevelopment revolving fund, see Health and Safety Code § 33620 et seq.

State law reference—Provisions on the community redevelopment agency administrative fund, see Chapter 3.08 of this Title.

excess of the money required to repay the loans and interest thereon authorized by this Chapter shall be redeposited in the fund and may thereafter be expended without further Council action in accordance with this Chapter and subject to such other terms and conditions as the City Council may hereafter prescribe. (Ord. C-5366 § 1 (part), 1977: prior code § 2614.3)

CHAPTER 3.28 RETIREMENT AND SOCIAL SECURITY FUND

3.28.010 Created.

To effectuate the provisions of the City Charter, relating to City employee retirement and Social Security benefits, there is created and established a revolving fund to be known as the retirement and Social Security fund, the moneys of which shall not be subject to transfer at the close of a fiscal year, but shall be maintained on a continuing basis from year to year. (Ord. C-5437 § 1 (part), 1978: prior code § 2615)

3.28.020 Deposit of funds.

The City Council shall annually levy and cause to be collected taxes on all taxable property in the City sufficient to provide funds in amounts necessary to discharge the City's obligations to its employees created by the electorate by the adoption of the provisions of the City Charter. All money so collected shall be deposited in the retirement and Social Security fund. All interest earned on investment of money in the fund shall be credited to the fund. (Ord. C-5437 § 1 (part), 1978: prior code § 2615.1)

3.28.030 Use of funds.

The money deposited in the retirement and Social Security fund shall be used for the redemption and discharge of the City's indebtedness and obligation to its employees, their spouses and beneficiaries relating to prior service benefits set forth in the City Charter, the Social Security Act contributions set forth in the City Charter and the indebtedness and obligations under the City's police and fire retirement system set forth in the City Charter. Money in this fund may be used to pay all costs and expenses relating to the redemption and discharge of the indebtedness and obligation referred to in this Section and may be transferred to other funds to effectuate payment of such indebtedness and obligations. (Ord. C-5437 § 1 (part), 1978: prior code § 2615.2)

CHAPTER 3.32 SPECIAL GAS TAX STREET IMPROVEMENT FUND*

3.32.010 Created.

In compliance with the provisions of Section 198 of the State Streets and Highways Code there is created and established a special fund to be known as the special gas tax street improvement fund. (Prior code § 2612)

3.32.020 Funds deposited.

All money received by the City from the State under the provisions of the Street and Highways Code for the acquisition of real property or interests therein for, or the construction, maintenance or improvement of streets other than State highways, shall be paid into the fund created and established in this Chapter. (Prior code § 2612.1)

3.32.030 Use of funds.

All moneys in the fund shall be expended exclusively for the purposes authorized by and subject to all of the provisions of Article 5, Chapter 1, Division 1, of the State Streets and Highways Code. (Prior code § 2612.2)

CHAPTER 3.36 SPECIAL PUBLIC IMPROVEMENT FUND†

3.36.010 Created.

The special public improvement fund heretofore created pursuant to Section 2469.2 of the

---

***State law references**—Provisions on the apportionment of moneys to cities having a special gas tax street improvement fund, Str. and H. C. §§ 2106, 2107 and 2113; provisions on expenditures of moneys so apportioned, Str. and H. C. § 186.3.

†**Editor's note**—The original source of the special public improvement fund was the cigarette tax established by Ord. C-4559, operative on January 1, 1967, and repealed by Ord. C-4685, effective August 22, 1967.

1955 Code, now repealed, is created and continued. Said fund shall be a continuing fund not subject to transfer at the close of the fiscal year. Said fund shall be used for the acquisition of improved and unimproved real property, construction of improvements on real property, financing off-street parking facilities and off-street parking districts, civic beautification, and similar projects which are authorized in the annual budget of the special public improvement fund or subsequently approved by the City Council to be financed from the special public improvement fund. All moneys heretofore and hereafter collected under the provisions of Chapter 4B of the 1955 Code, now repealed, including taxes, penalties and interest shall be deposited by the Tax Collector to the credit of said fund. All moneys heretofore and hereafter deposited in the special public improvement fund shall remain in said fund until expended. (Prior code § 2460)

CHAPTER 3.40 WARRANTS

3.40.010 Registration—Insufficient funds.

A. Whenever a warrant is drawn upon the Treasurer and such warrant is payable out of any fund in the City Treasury or out of moneys in the custody of the Treasurer, and such warrant represents an amount in excess of the unapplied money in the fund upon which such warrant is drawn, the Treasurer shall, upon the date that such warrant is countersigned by him, endorse upon the back thereof the date of his countersignature and that the same is not paid for want of money in the fund upon which such warrant is drawn and bears interest at the rate of four percent (4%) per year from the date of such registration to and including the date upon which the Treasurer advertises that such warrant is payable upon presentation. Endorsement by the Treasurer in the manner prescribed in this Subsection shall constitute the registration of such warrant.

B. After the registration thereof, the Treasurer shall deliver or transmit the same to the payee, or payees, named thereon.

C. The Treasurer shall keep a separate warrant register account for each of the funds in the City Treasury against which warrants are registered under this Section, and the Treasurer shall stamp on said warrant register the date on which any warrant is registered, and the date on which such warrant is advertised as payable.

D. Whenever, from time to time, there are sufficient moneys in any fund in the City Treasury upon which warrants have been drawn and registered to pay in the order of their priority, all or at least five (5) or more of the registered warrants outstanding against any such fund, together with interest thereon as provided in this Section, the Treasurer shall immediately publish notice that such warrants are redeemable, by advertising one (1) time in the official newspaper of the City. The notice shall read substantially as follows:

"NOTICE TO HOLDERS OF CITY OF LONG BEACH WARRANTS. City of Long Beach warrants, Registration Number _____ to Registration Number _____, inclusive, drawn on the City Treasurer of the City of Long Beach, are payable upon presentation to the City Treasurer of the City of Long Beach.

_____
(Name of City Treasurer)
City Treasurer of the City of
Long Beach, California."

E. Warrants registered in accordance with the provisions of this Section shall cease to bear interest on the date following the day on which said advertisement appears. Warrants registered as provided for in this Section, together with interest thereon as provided in this Section, shall constitute a prior lien, in the order of registration of such warrants, on any moneys thereafter received into the fund in the City Treasury upon which such warrants are drawn, and such warrants, and interest thereon, as provided in this Section, shall be paid in the order of their registration; provided, that such registered warrants, and interest thereon as provided in this Section, shall not take priority

over unregistered warrants drawn upon the same fund and outstanding at the time of such registration. No money shall be withdrawn or paid from any fund in the City Treasury upon which warrants have been drawn and registered, except to pay registered warrants drawn thereon, in the order of their priority, together with interest thereon as provided in this Section, or to pay unregistered warrants drawn on said fund and outstanding at the time of such registration, until all of the registered warrants drawn on such fund have been paid. Interest on each registered warrant as provided in this Section shall have the same priority as the registered warrant upon which it is payable.

F. Upon the presentation of any registered warrant to the Treasurer for payment, after the Treasurer has published notice that such warrant is redeemable, the Treasurer shall pay to the payee of the warrant, or his assignee, the amount for which the warrant is drawn, together with interest thereon at the rate of four percent (4%) per year from the date of the registration of the warrant to and including the date upon which the Treasurer advertised that such warrant would be payable upon presentation, said interest to be paid from the same fund out of which the principal of the warrant is paid, and the Treasurer shall be entitled to credit for the amount of interest so paid.

G. For the purposes of this Chapter "unapplied money" means money in any fund in the City Treasury for which outstanding warrants have not been already drawn, and which would remain in such fund if all outstanding warrants drawn upon such fund were paid. (Prior code § 2620)

3.40.020 Bonds—Registration—Insufficient funds.

A. Whenever the principal or interest coupon of any general obligation bond issued by the City is due and payable and such bond or interest coupon is presented and surrendered to the Treasurer, and there is not sufficient moneys in the fund out of which such bond or interest is payable or such bond or interest coupon represents an amount in excess of the unapplied money in the fund out of which such bond or interest coupon is payable, the Treasurer shall, upon the date that such bond or interest coupon is presented and surrendered to him, draw his warrant payable out of the fund from which such bond or interest coupon is payable and he shall, upon the date that such warrant is drawn by him, endorse his signature upon the back thereof, the date of his signature and that the same is not paid for want of money in the fund upon which such warrant is drawn and bears interest at the rate of four percent (4%) per year from the date of such registration, to and including the date upon which the Treasurer advertises that such warrant is payable upon presentation. Endorsement by the Treasurer in the manner prescribed in this Subsection shall constitute the registration of such warrant.

B. After the registration thereof, the Treasurer shall deliver or transmit the same to the payee or payees named thereon.

C. The Treasurer shall keep a separate warrant register account for each of the funds in the City Treasury against which warrants are registered under this Section, and the City Treasurer shall stamp on the warrant register the date on which any warrant is registered, and the date on which the warrant is advertised as payable.

D. Whenever, from time to time, there are sufficient moneys in any fund in the City Treasury upon which warrants have been drawn and registered to pay, in the order of their priority, all or at least five (5) or more of the registered warrants outstanding against any such fund, together with interest thereon as provided in this Section, the Treasurer shall immediately publish notice that such warrants are redeemable, by advertising one (1) time in the official newspaper of the City. Said notice shall read substantially as follows:

"NOTICE TO HOLDERS OF CITY OF LONG BEACH WARRANTS. City of Long Beach warrants, Registration Number _____ to Registration Number _____, inclusive, drawn on the City Treasurer of the City of Long Beach, are payable upon presentation to the City Treasurer of the City of Long Beach.

_____
(Name of City Treasurer)
City Treasurer of the City of
Long Beach, California."

E. Warrants registered in accordance with the provisions of this Section shall cease to bear interest on the date following the day on which said advertisement appears. Warrants registered as provided for in this Section, together with interest thereon as provided in this Section, shall constitute a prior lien, in the order of registration of such warrants, on any moneys thereafter received into the fund in the City Treasury upon which such warrants are drawn, and such warrants, and interest thereon, as provided in this Section, shall be paid in the order of their registration; provided, that such registered warrants, and interest thereon as provided in this Section, shall not take priority over unregistered warrants drawn upon the same fund and outstanding at the time of such registration. No money shall be withdrawn or paid from any fund in the City Treasury upon which warrants have been drawn and registered except to pay registered warrants drawn thereon, in the order of their priority together with interest thereon as provided in this Section, or to pay unregistered warrants drawn on said fund and outstanding at the time of such registration, until all of the registered warrants drawn on such fund have been paid. Interest on each registered warrant as provided in this Section shall have the same priority as the registered warrant upon which it is payable.

F. Upon the presentation of any registered warrant to the Treasurer for payment, after the Treasurer has published notice that such warrant is redeemable, the Treasurer shall pay to the payee of the warrant, or his assignee, the amount for which the warrant is drawn, together with interest thereon at the rate of four percent (4%) per year from the date of the registration of the warrant to and including the date upon which the Treasurer advertised that the warrant would be payable upon presentation, the interest to be paid from the same fund out of which the principal of the warrant is paid, and the Treasurer shall be entitled to credit for the amount of interest so paid.

G. For the purposes of this Chapter "unapplied money" means money in any fund in the City Treasury for which outstanding warrants have not been already drawn, and which would remain in such fund if all outstanding warrants drawn upon such fund were paid. (Prior code § 2620.1)

3.40.030 Cancellation.

Whenever any warrant heretofore or hereafter issued by the City, or heretofore or hereafter issued by any officer of the City who is charged with the issuance of such warrant, have remained unpaid for the period of two (2) years after such warrant has become payable, it shall be the duty of the office issuing such warrant to cancel the same. The amount of all warrants cancelled under the provisions of this Chapter shall revert to the fund in the City Treasury against which the warrants were drawn, and shall be entered upon the books of the officer issuing the warrant to the credit of the fund in the same manner as other moneys paid into the City Treasury. Warrants cancelled under the provisions of this Section shall be null and void. The officer shall each keep a register of warrants cancelled under this Section, in which register there shall be entered the number, date and amount of the warrant, the name of the person in whose favor it was drawn, the fund out of which it was payable and the date of its cancellation. (Prior code § 2620.2)

CHAPTER 3.44 CHECKS

3.44.010 Cancellation time limit.

Whenever the City uses checks as a disbursement medium, the following cancellation procedures shall apply:

A. On the face of each check shall be printed: "Not payable after ninety days from date of check".

B. After a period of ninety (90) days from the date shown on a check has expired, and such check has not been presented to the drawee bank for payment, the City Treasurer shall submit a written cancellation order to the drawee bank, upon which such check was drawn, informing the drawee bank not to honor or to make payment of the check subsequent thereto.

C. Whenever any check issued by the City is unpaid for a period of ninety (90) days from the date of the check and the City Treasurer has submitted a written cancellation order to the drawee bank on the check, the City Treasurer shall cancel the check.

D. The amount of all checks cancelled pursuant to authority granted by this Section shall revert to the respective funds in the City Treasury against which the checks were drawn.

E. Checks cancelled pursuant to the provisions of this Section shall be null and void.

F. The City shall keep an appropriate record of checks cancelled, which record shall include, but not be limited to, the date, payee, amount, and fund against which the check was drawn.

G. The City Treasurer shall issue a duplicate check to the payee shown on a cancelled check upon surrender by the payee of the cancelled check which duplicate check shall be in the full amount of the original cancelled check and shall be paid as though it were the original. (Ord. C-5550 § 1 (part), 1980: prior code § 2630)

3.44.020 Lost or destroyed checks.

Whenever any check legally drawn by the City is alleged to have been lost, stolen or destroyed before it has been paid by the City and before it has become void, the following procedures shall be followed with respect thereto:

A. The City Treasurer, upon being advised that the check has been lost, stolen or destroyed, shall immediately place a stop payment order on the check, in writing, with the bank upon which the check was drawn.

B. The person entitled to payment of the check may apply for issuance of a duplicate check by executing and filing with the City Treasurer a declaration under penalty of perjury in a form which shall be approved by the City Attorney.

C. Upon the written approval by the City Attorney of the executed and filed declaration under penalty of perjury, the Department of Financial Management shall prepare a duplicate check for the full amount of the original check, which duplicate check shall be paid by the City Treasurer as though it was the original.

D. Any loss incurred in connection with the issuance of the duplicate check shall be charged against the fund against which the duplicate check was drawn. (Ord. C-5550 § 1 (part), 1980: prior code § 2631)

3.44.030 Dishonored checks.

Whenever any check is made payable to the City in payment of any fee, rate, charge, tax, assessment, or other liability and said check is returned unpaid by the maker's bank, there shall be imposed upon the maker thereof a returned check charge.

The amount of the returned check charge, which shall not exceed the City's cost of processing said check, shall be established from time to time by the City Council by resolution. (ORD-10-0014, § 4, 2010; Ord. C-6000 § 1, 1983)

CHAPTER 3.48 CLAIMS AND REFUNDS

3.48.010 City Attorney authority.

Except as set forth below, the City Attorney is authorized to settle or compromise any claim or litigation, against the City or any officer, agent or employee thereof, without prior consent of the City Council, in an amount not to exceed fifty thousand dollars ($50,000.00) as to any single person, firm or corporation. With regard to workers' compensation claims, the City Attorney is authorized to settle or compromise any claim or litigation without the prior consent of the City Council in an amount not to exceed fifty thousand dollars ($50,000.00) as to any single person, firm or corporation. The City Attorney is authorized to settle or compromise any claim of fifty thousand dollars ($50,000.00) or less that the City has against other persons. The City Attorney is also authorized to execute and deliver to said other persons any instrument in writing necessary or advisable in connection with any settlement. Payment or settlement of all other claims shall be pursuant to authority granted by the City Council, and the City Attorney shall notify the City Council of any claims of fifty thousand dollars

($50,000.00) or less which are paid or compromised pursuant to the authority provided in this Section. (ORD-15-0005 § 1, 2015; ORD-07-0011 § 1, 2007: Ord. C-5921 § 1, 1982: prior code § 2710)

3.48.020 Cancellation of uncollectible delinquent accounts receivable and claims for damage to City property.

A. The Director of Financial Management is authorized and directed to terminate further efforts to collect, and to order removed from the accounts of the City, any account or claim of one thousand dollars ($1,000.00) or less, or portion thereof, that the City has against any other person, firm, or corporation in any of the circumstances set forth in Subsection C. of this Section.

B. The City Manager is authorized and directed to terminate further efforts to collect, and to order removed from the accounts of the City, any account or claim in excess of one thousand dollars ($1,000.00), or portion thereof, that the City has against any other person, firm, or corporation in any of the circumstances set forth in Subsection C. of this Section.

C. Collections may be terminated pursuant to Subsections A. or B. of this Section in, and only in, one (1) or more of the following circumstances:

1. The collection of the account or claim is barred by the statute of limitations;

2. The department initially responsible therefor, collection services, any collection agency with whom the City has contracted to collect such account or claim, and the City Attorney have exhausted every reasonable means of collecting the account or claim and the Director of Financial Management under Subsection A., or the City Manager under Subsection B. of this Section, is of the opinion that further efforts to collect the account or claim will constitute an idle and useless act and an unnecessary expenditure of public funds;

3. An account or claim or portion of an account or claim which is the subject of a settlement or compromise agreement authorized by the City Council;

4. That portion of an account or claim in excess of small claims court jurisdiction which the City Attorney has advised should be waived and which is not recoverable from the judgment debt or following judgment by the small claims court on the account or claim; or

5. The collection account represents the portion of an account otherwise due and owing that is in excess of maximum payment received from Medicare/Medicaid for the payment of that account. (Ord. C-6510 § 1, 1988: Ord. C-5388 § 1, 1978: prior code § 2710.1)

3.48.030 Refund—Payable when.

Unless expressly prohibited by any other ordinance of, or law applicable to, the City, so much of any money paid to the City by any person may be refunded to him or her, as will equal:

A. The amount paid, if it is determined that no law or ordinance required the making of such payment;

B. The amount paid in excess of the payment required by any law or ordinance;

C. The amount paid, if the application is withdrawn by such person prior to the City taking any action thereon, or having incurred any expense in connection therewith;

D. The amount paid for the participation in an event prior to the occurrence thereof, and which event, as to such person, did not occur, and the City did not incur any expense by reason thereof;

E. The amount paid to reimburse the City for its expense in making an investigation in connection with an application filed by such person if such application is withdrawn prior to there having been made any substantial investigation. (Prior code § 2715)

3.48.040 Refund—Conditions of payment.

The refund may be made to the person who paid the money under any of the following conditions:

A. If the amount paid is one thousand dollars ($1,000.00) or less and if the department head to which the money was paid authorizes the refund in accordance with prior written authorization of and subject to conditions imposed by the City Manager;

B. If the amount paid is fifty thousand dollars ($50,000.00) or less and if the department head to which the money was paid, with the approval of the City Attorney, authorizes the refund; provided, however, that refunds of one thousand dollars ($1,000.00) or less made in accordance with the provisions of Subsection A. of this Section shall not require the approval of the City Attorney;

C. If the amount paid is more than fifty thousand dollars ($50,000.00) and the department head to which the money was paid, with the approval of the City Attorney and the City Council, authorizes the refund. (ORD-22-0030 § 1, 2022; ORD-06-0011 § 1, 2006: Ord. C-6664 § 1, 1989: Ord. C-5558 § 1, 1980: Ord. C-5377 § 1 (part), 1977: prior code § 2715.1)

3.48.050 Refund—Payee deceased.

If the person entitled to the refund is an individual and such person becomes deceased, the refund may be made to such person entitled to receive the money. (Prior code § 2715.2)

3.48.060 Refund—Time limitation of payment.

Any refund made pursuant to this Chapter must be authorized by the department head with the approval of the City Attorney or the City Attorney and the City Council, provided the refund is made within one (1) year after payment of the money to the City, or if an application for a refund is filed by the person entitled to the money, the application therefor must be filed within such one (1) year period. (Ord. C-5377 § 1 (part), 1977: prior code § 2715.3)

3.48.070 Refund—Conflicting provisions.

If any ordinance of the City or any law applicable thereto expressly authorizes, in certain contingencies, the making of a refund of money paid to the City or prescribes the procedure therefor, such ordinance shall control in making the refund. The Council declares that its intent, in adopting this Chapter, is to provide for the making of refunds of money paid to the City, under the conditions set forth in this Chapter, not otherwise expressly prohibited by any ordinance or law applicable to the City or not otherwise expressly authorized by such ordinance or law. (Prior code § 2715.4)

CHAPTER 3.52 BONDS AND PUBLIC IMPROVEMENT FINANCING

DIVISION I. REVENUE BONDS*

3.52.110 Issuance resolution—Required.

The City Council, exercising the powers reserved to the City under the Constitution of the State of California and provisions of the Charter of the City, by resolution, may issue and sell revenue bonds when the public interest and necessity require; provided, however, that where the revenue bonds are to be issued for the purpose of any department of the City which has its own Board of Commissioners, the bonds, with the approval of the City Council expressed by resolution, may be issued and sold on behalf of the City by the Board of Commissioners of the department. (Ord. C-5971 § 1 (part), 1983: Ord. C-5618 § 2 (part), 1980: prior code § 2750)

3.52.115 Projects authorized.

Revenue bonds may be issued, sold and delivered under the authority of this Division for the purpose of financing or refinancing any public project (Ord. C-7085 § 4, 1993)

3.52.120 Issuance resolution—Adoption.

At a regular or special meeting and by a majority vote of all members, the City Council or the Board of Commissioners of a department, if the revenue bonds are to be issued for a purpose of the department, shall adopt a resolution authorizing the issuance of said bonds without the requirement of submitting the proposition of issuing revenue bonds to the qualified voters. The resolu-

*State law reference—Provisions on revenue bonds, Gov. C. § 54300 et seq.

tion shall state all the terms and conditions upon which the bonds are being offered for sale, that the

bonds are to be revenue bonds payable exclusively from revenues and such other funds as may be legally available for such purpose, and that the bonds are not to be secured by the taxing power of the City. (Ord. C-7085 § 1, 1993: Ord. C-5971 § 1 (part), 1983: Ord. C-5618 § 2 (part), 1980: prior code § 2750.1)

3.52.130 Sale and issuance of bonds.

A. Revenue bonds may be sold by the City Council or the Board of Commissioners upon either: (1) competitive bid as provided in Subsection B of this Section; or (2) by negotiated private sale pursuant to and in accordance with a resolution adopted by a majority of all members of the City Council or of the Board of Commissioners.

B. If revenue bonds are to be sold by competitive bid, then before selling the bonds or any part thereof, the City Council or the Board of Commissioners of the department, if the bonds are to be issued for a purpose of the department, shall give notice inviting sealed bids by publication of the notice once in a newspaper of general circulation within the City at least ten (10) days prior to the date of opening bids stated in the notice, together with such other notices as may be required by law. If satisfactory bids are received, the revenue bonds offered for sale shall be awarded to the lowest responsible bidder. If no bids are received, or if the City Council or the Board of Commissioners determines that the bids received are either not responsive to the notice inviting the same or not satisfactory as to price or responsibility of the bidders, the City Council or the Board of Commissioners may reject all bids received, if any. In the event no bids are received or all bids are rejected, the City Council or the Board of Commissioners may either readvertise or sell the bonds at private sale subject to confirmation thereof by resolution adopted by a majority of all members of the City Council or of the Board of Commissioners. The private sale may then be made upon terms and conditions other than those contained in the resolution authorizing issuance of the revenue bonds and the notice inviting bids therefor. (Ord. C-7085 § 2, 1993: Ord. C-6142 § 1, 1985: Ord. C-5971 § 1 (part), 1983: Ord. C-5618 § 2 (part), 1980: prior code § 2750.2)

3.52.140 Statutes adopted.

In addition to, and not as a limitation of, the authority provided by Section 3.52.110, the City may exercise all of the rights and powers and perform the duties and covenants contained in the Revenue Bond Law of 1941 (commencing with Government Code Section 54300), if included in the resolution authorizing issuance of the revenue bonds, which are by this reference, with the exceptions stated in this Section, incorporated in this Section. Government Code Sections 54380 through 54388, both inclusive, and Sections 54310, 54402, and 54418 are not incorporated in this Section and shall not be applicable to revenue bonds issued by the City Council or the Board of Commissioners of a department. (Ord. C-7085 § 3, 1993: Ord. C-5971 § 1 (part), 1983: Ord. C-5618 § 2 (part), 1980: prior code 2750.3)

3.52.150 Construction.

This Division shall be liberally construed. (Ord. C-5971 § 1 (part), 1983: Ord. C-5618 § 2 (part), 1980: prior code § 2750.4)

DIVISION II. INDUSTRIAL DEVELOPMENT REVENUE BONDS

Subdivision 1. General Provisions and Definitions

3.52.210 Recitals.

For the purpose of this Division, the following recitals shall apply:

A. The City of Long Beach (the "City") is a municipal corporation and Charter City duly organized and existing under a freeholders' Charter pursuant to which the City has the right and power to make and enforce all laws and regulations in respect to municipal affairs and certain other matters in accordance with and as more particularly provided in Section 3, 5 and 7 of Article XI of the Constitution of the State of California and Section 109 of Article I of the Charter of the City (the "Charter").

B. The City Council of the City acting under and pursuant to the powers reserved to the City under Sections 3, 5 and 7 of Article XI of the Constitution of the State of California and Sec-

tion 109 of Article I of the Charter, finds that the public interest and necessity require the establishment by the procedural ordinance codified in this Division of a procedure for the authorization, issuance and sale of revenue bonds by the City for the purpose of providing financing or refinancing to certain industrial, commercial and manufacturing participants, or to certain nonprofit participants, for certain purposes as specified herein. (Ord. C-7058 § 1, 1992: Ord. C-5971 § 1 (part), 1983)

3.52.212 Citation.

This Division contains a procedural ordinance for the authorization, issuance and sale of industrial development bonds in the City of Long Beach and may be cited as the "City of Long Beach Industrial Development Revenue Bond Law." (Ord. C-5971 § 1 (part), 1983)

3.52.214 Findings and declarations.

The City Council finds and declares that it is necessary, essential, a public purpose and a municipal affair for the City to be authorized to provide financing to induce manufacturing, industrial, commercial and nonprofit enterprises to locate in the City, to expand, enlarge or modernize existing enterprises, to promote commerce and industry, as well as educational and cultural opportunities, within the City. (Ord. C-7058 § 2, 1992: Ord. C-5971 § 1 (part), 1983)

3.52.216 Definitions.

Unless the context otherwise requires, the terms used in this Division shall have the following meanings:

A. "Bonds" means any bonds, notes, certificates, debentures or other obligations issued by the City pursuant to this Chapter and payable exclusively from revenues as in this Chapter defined and from any other funds specified in this Chapter upon which such obligations may be made a charge and from which they are payable.

B. "City" means the City of Long Beach.

C. "Cost" means the total of all costs incurred by or on behalf of a participant as are approved by the City as reasonable and necessary for carrying out all works and undertakings necessary or incident to acquisition, construction, financing or refinancing of a facility. "Cost" shall include all such costs, including costs for construction undertaken by a participant as its own contractor, which under generally accepted accounting principles are not properly chargeable as an expense of operation and maintenance.

D. "Council" means the City Council of the City of Long Beach.

E. "Facility" means any land, building or other improvement for use by any industry for manufacturing, processing or assembling any agricultural or manufactured products, by any commercial enterprise in storing, warehousing, distributing or selling products of agriculture, mining or industry, or by any person for the carrying on of commercial and/or retail enterprises, or the providing of offices for any business, educational or cultural purpose, on a rental or lease basis, or for the support or operation of airport facilities and related hotels, roadways and parking facilities; or any research enterprise for the foregoing; including without limitation all real or personal property necessary to the operation of such facility.

F. "Participant" means any person, company, corporation, partnership, firm, or other entity or group of entities engaged in operations within this City or desiring to establish, improve or expand such operations, which requires financing pursuant to the terms of this Chapter.

G. "Revenues" means amounts received by the City as repayment of principal, interest, and all other charges with respect to a loan under this Chapter, any proceeds received by the City from mortgage, hazard or other insurance on or with respect to such a loan, all other rents, charges, fees, income and receipts derived by the City from the financing or refinancing of a facility under this Chapter, any amounts received by the City as investment earnings on moneys deposited in a reserve fund or any similar fund securing bonds, and such other moneys as the Council may, in its discretion lawfully designate as revenues. (Ord. C-7058 § 3, 1992; Ord. C-5971 § 1 (part), 1983)

Subdivision 2. Financing Industrial Development Facilities

3.52.220 Use of proceeds.

A. The City may use the proceeds of bonds issued hereunder to make, purchase, or otherwise contract for the making of, a mortgage or other secured or unsecured loan, upon such terms and conditions as the City shall deem proper, to any participant for the cost of acquiring or constructing a facility or financing thereof; provided, however, that no such loan shall exceed the total cost of such facility as determined by the participant and approved by the City.

B. The City may sue the proceeds of bonds, or other moneys provided by or on behalf of a participant, to acquire, construct, enlarge, remodel, renovate, alter, improve, furnish, equip and lease a facility solely for the purpose of selling or leasing such a facility to such participant, and may contract with such participant to undertake on behalf of the City to construct, enlarge, remodel, renovate, alter, improve, furnish and equip such facility.

The City may sell or lease, upon such terms and conditions as the City shall deem proper, to a participant any facility owned by the City under this Chapter, including a facility conveyed to the City in connection with a financing under this Division but not being financed hereunder. (Ord. C-5971 § 1 (part), 1983)

3.52.221 Application for participation.

Any person may apply to the City for approval as a participant and for approval of a facility for financing under this Division by submitting an application to the City in the form approved by the City. (Ord. C-5971 § 1 (part), 1983)

3.52.222 Equal opportunity/affirmative action.

The City shall require the participants and contractors or subcontractors engaged in the construction of a facility financed under this Division to provide equal opportunity for employment, without discrimination as to race, marital status, sex, color, religion, national origin or ancestry. The City shall also require that participants engaged in the acquisition, construction, installation, reconstruction, rehabilitation or improvement of a facility financed under this Division shall submit as a part of their applications hereunder an affirmative action program. (Ord. C-5971 § 1 (part), 1983)

3.52.223 Standards and procedures for applications.

The City Manager shall propose standards and procedures for applications submitted under this Division and shall prepare a form for such applications, such standards, procedures and form to be approved by the City before participants may apply for the financing of facilities hereunder. (Ord. C-5971 § 1 (part), 1983)

3.52.224 Application fees.

The City may charge participants application, commitment, financing and other fees, in order to recover all direct administrative and other costs and expenses incurred in the exercise of the powers and duties conferred by this Division. (Ord. C-5971 § 1 (part), 1983)

3.52.225 Financing assistance.

The City may obtain, or aid in obtaining, from any department or agency of the United States or of the State of California or any private company, any insurance or guarantee as to, or of, or for the payment or repayment of, interest or principal, or both, or any part thereof, on any loan, lease or sale obligation or any instrument evidencing or securing the same, made or entered into pursuant to the provisions of this Division; and may accept payment in such manner and form as provided therein in the event of default by a participant, and may assign any such insurance or guarantee as security for bonds. (Ord. C-5971 § 1 (part), 1983)

3.52.226 Cost controls.

The City may fix rents, payments, fees, charges and interest rates for financing under this Division and may agree to revise from time to time such rents, payments, fees, charges and interest rates to

reflect changes in interest rates on bonds, losses due to defaults or changes in other expenses related to this Division, including City administrative expenses. (Ord. C-5971 § 1 (part), 1983)

3.52.227 Loan security.

The City may hold deeds of trust or mortgages as security for loans under this Division and may pledge or assign the same as security for repayment of bonds. Such deeds of trust or mortgages may be assigned to, and held on behalf of the City by, any bank or trust company appointed to act as trustee by the City in any resolution or indenture providing for issuance of bonds. (Ord. C-5971 § 1 (part), 1983)

3.52.228 Professional services.

The City may employ such engineering, architectural, financial, accounting, legal or other services as may be necessary in the judgment of the City for the purposes of this Division. (Ord. C-5971 § 1 (part), 1983)

3.52.229 Additional powers.

In addition to all other powers specifically granted by this Division, the City may do all things necessary or convenient to carry out the purposes of this Chapter. (Ord. C-5971 § 1 (part), 1983)

Subdivision 3. Bonds

3.52.230 Issuance.

A. The City may, from time to time, issue bonds for any of the purposes specified in Section 3.52.208. Bonds shall be negotiable instruments for all purposes, subject only to the provisions of such bonds for registration.

B. Every issue of bonds shall be a limited obligation of the City payable from all or any specified part of the revenues and the moneys and assets authorized in this Division to be pledged or assigned to secure payment of bonds. Such revenues, moneys or assets shall be the sole source of repayment of such issue of bonds. Bonds issued under the provisions of this Division shall not be deemed to constitute a debt or liability of the City or a pledge of the faith and credit of the City but shall be payable solely from specified revenues, moneys and assets. The issuance of bonds shall not directly, indirectly, or contingently obligate the City to levy or pledge any form of taxation or to make any appropriation for their payment.

All bonds shall contain on the face thereof a statement to the following effect:

> Neither the faith and credit nor the taxing power of the City is pledged to the payment of the principal of, or premium or interest on this bond. (Ord. C-5971 § 1 (part), 1983)

3.52.231 Form of bonds.

Bonds may be issued as serial bonds, term bonds, installment bonds or pass-through certificates or any combination thereof. Bonds shall be authorized by resolution of the Council and shall bear such date or dates, mature at such time or times, bear interest at such fixed or variable rate or rates, be payable at such time or times, be in such denominations, be in such form, either coupon or registered, carry such registration privileges, be executed in such manner, be payable in lawful money of the United States of America at such place or places, be subject to such terms of redemption and have such other terms and conditions as such resolution or any indenture authorized by such resolution to be entered into by the City may provide. Bonds may be sold at either a public or private sale and for such prices as the City shall determine. Pending preparation of definitive bonds, the City may issue temporary bonds, which shall be exchanged for such definitive bonds when prepared. (Ord. C-5971 § 1 (part), 1983)

3.52.232 Terms and conditions.

Any resolution authorizing any bonds or any issue of bonds, or any indenture authorized by such resolution to be entered into by the City, may contain provisions respecting any of the following terms and conditions which shall be a part of the contract with the holders of such bonds:

A. The terms, conditions and form of such bonds and the interest and principal to be paid thereon;

B. Limitations on the uses and purposes to which the proceeds of sale of such bond may be applied, and the pledge or assignment of such proceeds to secure the payment of such bonds;

C. Limitations on the issuance of additional parity bonds, the terms upon which additional parity bonds may be issued and secured, and the refunding of outstanding bonds;

D. The setting aside of reserves, sinking funds and such other funds as are necessary and the regulation and disposition thereof;

E. The pledge or assignment of all or any part of the revenues and the use and disposition thereof, subject to such agreements with the holders of bonds as may then be outstanding;

F. Limitation on the use of revenues for expenditures for operating, administration or other expenses of the City or a participant;

G. Specification of the acts or omissions to act which shall constitute a default in the duties of the City or a participant to holders of such bonds, and providing the rights and remedies of such holders in the event of default, including any limitations on the right of action by individual bondholders;

H. The appointment of a corporate trustee to act on behalf of the City and the holders of its bonds, the pledge or assignment of loans, deeds of trust, mortgages and any other contracts to such trustee, and the rights of such trustee;

I. The procedure, if any, by which the terms of any contract with bondholders may be amended or abrogated, the amount of such bonds the holders of which must consent thereto, and the manner in which such consent may be given; and

J. Any other provisions which the Council may deem reasonable and proper for the purposes of this Chapter and the security of the bondholders. (Ord. C-5971 § 1 (part), 1983)

3.52.233 Lien and pledge.

Any pledge of revenues or other moneys or assets pursuant to the provisions of this Division shall be valid and binding from the time such pledge is made. Revenues, moneys and assets so pledged and thereafter received by the City shall immediately be subject to the lien of such pledge without any physical delivery thereof or further act, and the lien of any such pledge shall be valid and binding as against all parties having claims of any kind in tort, contract, or otherwise against the City, irrespective of whether such parties have notice thereof. Neither the resolution nor any indenture by which a pledge is created need be filed or recorded except in the records of the City. (Ord. C-5971 § 1 (part), 1983)

3.52.234 Disclaimers of liability.

Neither the members of the Council, the officers or employees of the City, nor any person executing any bonds shall be liable personally on the bonds or be subject to any personal liability or accountability by reason of the issuance thereof. (Ord. C-5971 § 1 (part), 1983)

3.52.235 City purchase of bonds.

The City shall have the power out of any funds available therefor to purchase its bonds. The City may hold, pledge, cancel, or resell such bonds, subject and in accordance with agreements with bondholders. (Ord. C-5971 § 1 (part), 1983)

3.52.236 Rights of holders.

Any holder of bonds issued under the provisions of this Division or any of the coupons appertaining thereto, and any trustee appointed pursuant to any resolution authorizing the issuance of bonds, except to the extent the rights thereof may be restricted by such resolution or any indenture authorized thereby to be entered into by the City, may, either at law or in equity, by suit, action, mandamus, or other proceedings, protect or enforce any and all rights specified in law or in such resolution or indenture, and may enforce and compel the performance of all duties required by this Chapter or by such resolution or indenture to be performed by the City or by any officer, employee, or agent thereof, including the fixing, charging, and collecting of rates, fees, interest, the charges authorized and required by the provisions of such resolution or indenture to be fixed, charged, and collected. (Ord. C-5971 § 1 (part), 1983)

3.52.237 Refunding of bonds.

A. The City may issue bonds for the purpose of refunding any bonds then outstanding including the payment of any redemption premiums thereof and any interest accrued or to accrue to the earliest or any subsequent date or dates of redemption, purchase, or maturity of such bonds.

B. The proceeds of bonds issued for the purpose of refunding any outstanding bonds may, in the discretion of the City, be applied to the purchase or retirement at maturity or redemption of such outstanding bonds, either at their earliest or any subsequent redemption date or dates or upon the purchase or retirement at the maturity thereof and may, pending such application, be placed in escrow, to be applied to such purchase or retirement at maturity or redemption on such date or dates as may be determined by the City.

C. Pending use for purchase, retirement at maturity or redemption of outstanding bonds, any proceeds held in escrow pursuant to Subsection 3.52.237.B may be invested and reinvested as provided in the resolution or indenture. Any interest or other increment earned or realized on any such investment may be applied to the payment of the outstanding bonds to be refunded or to the payment of interest on the refunding bonds. After the terms of escrow have been fully satisfied and carried out, any balance of such proceeds and any interest or increment earned or realized from the investment thereof may be returned to the City to be used by it for any lawful purpose.

D. All bonds issued pursuant to this Section shall be subject to the provisions of this Division in the same manner and to the same extent as other bonds issued pursuant to this Division. (Ord. C-5971 § 1 (part), 1983)

3.52.238 Validity.

The validity of the authorization and issuance of any bonds is not dependent on and shall not be affected in any way by any proceedings taken by the City for the making of any loan or the entering into of any agreement, or by the failure to make any load or enter into any agreement, for which bonds are authorized to be issued under this Chapter. (Ord. C-5971 § 1 (part), 1983)

Subdivision 4. Supplemental Provisions

3.52.240 Liberal construction.

This Division, being necessary for the welfare of the City and its inhabitants, shall be liberally construed to effect its purposes. (Ord. C-5971 § 1 (part), 1983)

3.52.242 Validity of proceedings.

If the jurisdiction of the Council to order the proposed act is not affected, any omission of any officer of the City in proceedings under this Division or any other defect in the proceedings shall not invalidate such proceedings or the bonds issued pursuant to this Division. (Ord. C-5971 § 1 (part), 1983)

3.52.244 Authority for issuance of bonds.

This Division is full authority for the issuance of bonds by the City for the purposes specified herein. (Ord. C-5971 § 1 (part), 1983)

3.52.246 Alternative procedure.

This Division shall be deemed to provide a complete, additional, and alternative method for doing the things authorized thereby, and shall be regarded as supplemental and additional to the powers conferred by other laws. The issuance of bonds under the provisions of this Division need not comply with the requirements of any other law applicable to the issuance of bonds. The purposes authorized hereby may be effectuated and bonds may be issued for any such purposes under this Division notwithstanding that any other law may provide for such purposes or for the issuance of bonds for like purposes and without regard to the requirements, restrictions, limitations, or other provisions contained in any other law. (Ord. C-5971 § 1 (part), 1983)

DIVISION III. HEALTH FACILITIES BONDS

Subdivision 1. General Provisions and Definitions

3.52.312 Citation.

This Division may be cited as the "City of Long Beach Charitable Institutions Revenue Bond

Law". (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

3.52.314 Declaration of necessity.

The Council hereby finds and declares that it is necessary, essential, a public purpose and a municipal affair for the City to be authorized to provide financing to charitable institutions within the City that provide facilities and services to residents of the City in order to aid such charitable institutions in containing costs and thereby to enable such charitable institutions to lower costs to the public and to provide better and more efficient service than would otherwise prevail. Unless the City intervenes to provide such financing, the costs of providing such facilities and services may increase at an ever-accelerating pace because such institutions cannot obtain financing at reasonable rates from private sources. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

3.52.316 Definitions.

Unless the context otherwise requires, the terms defined in this Division shall have the following meanings:

A. "Bonds" means any bonds, notes, certificates, debentures or other obligations issued or entered into by the City pursuant to this Division and payable exclusively from revenues as in this Division defined and from any other funds specified in this Division upon which such obligations may be made a charge and from which they are made payable.

B. "City" means the City of Long Beach.

C. "Cost" means the total of all costs incurred by or on behalf of a participating institution necessary or incident to the acquisition, construction, rehabilitation or improvement of a facility, or the refunding or refinancing of obligations incurred to finance such acquisition, construction, rehabilitation or improvements as are approved by the City as reasonable and necessary for carrying out all works and undertakings necessary or incident to acquisition, construction, financing or refinancing of a facility.

D. "Council" means the City Council of the City of Long Beach.

E. "Facility" means any facility, place or building within the City which is maintained and operated for charitable purposes consistent with the purposes for which a participating institution is organized, as evidenced by its articles and bylaws or other Charter documents, and by a determination letter from the Internal Revenue Service, which facility is available to, and serves, the general public of the City. "Facility" shall include any and all structures or improvements related or appurtenant to a facility, required or useful for its operation, but shall not include any facility or building used or to be used primarily for sectarian instruction or study or as a place for devotional activities or religious worship.

F. "Participating institution" means a private nonprofit corporation or association authorized by the laws of the State of California to provide or operate a facility as defined in this Division and which, pursuant to the provisions of this Division, undertakes the financing of the acquisition and construction of a facility or undertakes the refunding or refinancing of obligations incurred to finance the acquisition and construction of a facility.

G. "Revenue" means amounts received or to be received by the City as repayment of principal, interest, and all other charges with respect to a loan under this Division, any proceeds received by the City from mortgage, hazard or other insurance on or with respect to such a loan, all other rents, charges, fees, income and receipts derived by the City from the financing or refinancing of a facility under this Division, any amounts received by the City as investment earnings on moneys deposited in a reserve fund or any similar fund securing bonds, and such other moneys as the Council may, in its discretion, lawfully designate as revenues. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

Subdivision 2. Financing Health Facilities

3.52.320 Loan for facility and refinancing or refunding.

A. The City may make, purchase, or otherwise contract for the making of, a secured loan, upon such terms and conditions as the City shall deem proper, to any participating institution with a facility located or to be located in the City, or to any corporation which is a nonprofit corporation in California or a sister State of the United States of America which is the sole member of a participating institution located or to be located in the City, for the cost of acquiring or constructing a health facility or financing thereof; provided, however, that no such loan shall exceed the total cost of such facility as determined by the participating institution and approved by the City.

B. The City may make, purchase, or otherwise contract for the making of a secured loan, upon such terms and conditions as the City shall deem proper, to any participating institution located or to be located in the City, or to any corporation which is a nonprofit corporation in California or a sister State of the United States of America which is the sole member of a participating institution located or to be located in the City, or exchange its bonds in order to refund or refinance outstanding obligations of such participating institution incurred to finance the cost of acquiring or constructing a facility, whether or not such obligations were incurred prior to or after the enactment of this Division, if the City finds that such refunding or refinancing is in the public interest and either alleviates a financial or operating hardship of such participating institution, or is in connection with other financing by the City for such participating institution or may be expected to result in lower charges or expenses or containment of the rate of increase thereof, or any combination thereof. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

3.52.321 Sale or lease of facility by City.

The City may acquire, construct, enlarge, remodel, renovate, alter, improve, furnish, equip, own or lease as lessee a facility for the purpose of simultaneously selling or leasing such facility to a participating institution located or to be located in the City, or to any corporation which is a nonprofit corporation in California or a sister State of the United States of America which is the sole member of a participating institution located or to be located in the City, and may designate such participating institution as its agent to undertake to construct, enlarge, remodel, renovate, alter, improve, furnish, and equip such facility.

The City may sell or lease, upon such terms and conditions as the City shall deem proper, to any such participating institution or member corporation any facility owned by the City under this Division, including a health facility conveyed to the City in connection with a financing under this Division but not being financed or refinanced hereunder. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

3.52.322 Recovery of costs and expenses by City.

The City may charge participating institutions and member corporations application, commitment, financing and other fees, in order to recover all administrative and other costs and expenses incurred in the exercise of the powers and duties conferred by this Division. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

3.52.323 Insurance or guarantee of payment.

The City may obtain, or aid in obtaining, from any department or agency of the United States or of the State of California or any private company, any insurance or guarantee as to, or of, or for the payment or repayment of, interest or principal, or both, or any part thereof, on any loan, lease or sale obligation or any instrument evidencing or securing the same, made or entered into pursuant to the provisions of this Division; and may accept payment in such manner and form as provided therein in the event of a default by a institution or member corporation, and may assign any such insurance or guarantee as security for bonds. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

3.52.324 Fixing rents, fees, rates, etc.

The City may fix rents, payments, fees, charges and interest rates for financing under this Division and may agree to revise from time to time such rents, payments, fees, charges and interest rates to reflect changes in interest rates on bonds, losses due to defaults or changes in other expenses related to this Division, including City administrative expenses. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

3.52.325 Deeds of trust or mortgages as security.

The City may hold deeds of trust or mortgages as security for loans under this Division and may pledge or assign the same as security for repayment of bonds. Such deeds of trust or mortgages may be assigned to, and held on behalf of the City by, any bank or trust company appointed to act as trustee by the City in any resolution or indenture providing for issuance of bonds. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

3.52.326 Employment of experts and consultants.

The City may employ such engineering, architectural, financial, accounting, legal or other services as may be necessary in the judgment of the City for the purposes of this Division. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

3.52.327 Do all things necessary and convenient.

In addition to all other powers specifically granted by this Division, the City may do all things necessary or convenient to carry out the purposes of this Division. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

Subdivision 3. Bonds

3.52.330 Issue limited obligation bonds.

A. The City may, from time to time, issue bonds for any of the purposes specified in Sections 3.52.320 and 3.52.321. Bonds shall be negotiable instruments for all purposes, subject only to the provisions of such bonds for registration.

B. Every issue of bonds shall be limited obligation of the City payable solely from all or any specified part of the revenues and the moneys and assets authorized in this Division to be pledged or assigned to secure payment of bonds. Such revenues, moneys or assets shall be the sole source of repayment of such issue of bonds. Bonds issued under the provisions of this Division shall not be deemed to constitute a debt or liability of the City or a pledge of the faith and credit of the City but shall be payable solely from specified revenues, moneys and assets. The issuance of bonds shall not directly, indirectly, or contingently obligate the City to levy or pledge any form of taxation or to make any appropriation for their payment.

C. All bonds shall contain on the face thereof a statement to the following effect:

Neither the faith and credit nor the taxing power of the City of Long Beach, the State of California, nor any political subdivision thereof is pledged to the payment of the principal of or premium or interest on this bond. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

3.52.331 Amount of bonds.

In determining the amount of bonds to be issued, the City may include all costs of the issuance of such bonds, reserves for debt service and for repairs, replacement, additions and improvements, and capitalized bond interest for such period as the City may determine. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

3.52.332 Type, form and sale of bonds.

Bonds may be issued as serial bonds, term bonds, installment bonds or pass-through certificates of participation, revenue notes or any combination thereof, in any interest rate mode designated for the bonds. Bonds shall be authorized by resolution of the Council and shall bear such date or dates, mature at such time or times, bear interest at such fixed or variable rate or rates, be payable at such time or times, be in such denominations, be in such form, either book-entry or certificated, be executed in such manner, be payable in lawful money of the United States of Amer-

ica at such place or places, be subject to such terms of redemption and have such other terms and conditions as such resolutions or any indenture authorized by such resolution to be entered into by the City may provide. Bonds may be sold at either a public or private sale and for such prices as the City, acting on behalf of the participating institution, shall determine. Pending preparation of definitive bonds, the City may issue temporary bonds, which shall be exchanged for such definitive bonds when prepared. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

3.52.333 Terms and conditions of bonds.

Any resolution authorizing any bonds or any issue of bonds, or any indenture authorized by such resolution to be entered into by the City, may contain provisions respecting any of the following terms and conditions, which shall be a part of the contract with the holders of such bonds:

A. The terms, conditions and form of such bonds and the interest and principal to be paid thereon.

B. Limitations on the uses and purposes to which the proceeds of sale of such bonds may be applied, and the pledge or assignment of such proceeds to secure the payment of such bonds.

C. Limitations on the issuance of additional parity bonds, the terms upon which additional parity bonds may be issued and secured, and the refunding of outstanding bonds.

D. The setting aside of reserves, sinking funds, and such other funds as are necessary and the regulation and disposition thereof.

E. The pledge or assignment of all or any part of the revenues and the use and disposition thereof, subject to such agreements with the holders of bonds as may then be outstanding.

F. Limitation on the use of revenues for expenditures for maintenance and operation, administration or other expenses of the City.

G. Specification of the acts or omissions to act which shall constitute a default in the duties of the City, a participating institution or a member corporation to holders of such bonds, and providing the rights and remedies of such holders in the event of default, including any limitations on the right of action by individual bondholders.

H. The appointment of a corporate trustee to act on behalf of the City and the holders of its bonds, the pledge or assignment of loans, deeds of trust, mortgages and any contracts or agreements to such trustee, and the rights of such trustee.

I. The procedures, if any, by which the terms of any contract with bondholders may be amended or abrogated, the amount of such bonds, the holders of which must consent thereto, and the manner in which such consent may be given.

J. Any other provisions which the Council may deem reasonable and proper for the purposes of this Division and the security of the bondholders. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

3.52.334 Pledge of revenues.

Any pledge of revenues, other moneys or assets, or any centralized pool of said revenues, other moneys or assets, pursuant to the provisions of this Division shall be valid and binding from the time such pledge is made. Revenues, moneys and assets so pledged and thereafter received by the City shall immediately be subject to the lien of such pledge without any physical delivery thereof or further act, and the lien of any such pledge shall be valid and binding as against all parties having claims of any kind in tort, contract, or otherwise against the City, irrespective of whether such parties have notice thereof. Neither the resolution nor any indenture by which a pledge is created need be filed or recorded except in the records of the City. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

3.52.335 Liability of Council and officers.

Neither the members of the Council, the officers or employees of the City, nor any person executing any bonds shall be liable personally on the bonds or be subject to any personal liability or accountability by reason of the issuance thereof. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1, (part), 1983)

3.52.336 Purchase of bonds by City.

The City shall have the power out of any funds available therefor to purchase bonds issued hereunder. The City may hold, pledge, cancel, or resell such bonds, subject to and in accordance with agreements with the bondholders. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

3.52.337 Compelling performance.

Any holder of bonds issued under the provisions of this Division and any trustee appointed pursuant to any resolution or indenture authorizing the issuance of bonds, except to the extent the rights thereof may be restricted by such resolution or any indenture authorized thereby to be entered into by the City may, either at law or in equity, by suit, action, mandamus, or other proceeding protect or enforce any and all rights specified in law or in such resolution or indenture, and may enforce and compel the performance of all duties required by this Division or by such resolution or indenture to be performed by the City or by any officer, employee or agent thereof, including the fixing, charging, and collecting of rates, fees, interest, and charges authorized and required by the provisions of such resolution or indenture to be fixed, charged, and collected. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

3.52.338 Refunding bonds—Use of proceeds.

A. The City may issue bonds for the purpose of refunding any bonds then outstanding, including the payment of any redemption premiums thereof and any interest accrued or to accrue to the earliest or any subsequent date or dates of redemption, purchase, or maturity of such bonds.

B. The proceeds of bonds issued for the purpose of refunding any outstanding bonds may, in the discretion of the participating institution and the City, be applied to the purchase or retirement at maturity or redemption of such outstanding bonds, either at their earliest or any subsequent redemption date or dates or upon the purchase or retirement at the maturity thereof and may, pending such application, be placed in escrow, to be applied to such purchase or retirement at maturity or redemption on such date or dates as may be determined by the City.

C. Pending use for purchase, retirement at maturity or redemption of outstanding bonds, any proceeds held in escrow pursuant to Subsection 3.52.338.B may be invested and reinvested as provided in the applicable resolution or indenture. Any interest or other increment earned or realized on any such investment may be applied to the payment of the bonds to be refunded or to the payment of interest on the refunding bonds. After the terms of the escrow have been fully satisfied and carried out, any balance of such proceeds and any interest or increment earned on such proceeds and any interest or increment earned or realized from the investment thereof may be returned to or upon the order of the participating institution to be used by it for any lawful purpose.

D. All bonds issued pursuant to this Section shall be subject to the provisions of this Division in the same manner and to the same extent as other bonds issued pursuant to this Division. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

3.52.339 Independent validity of bonds.

The validity of the authorization and issuance of any bonds is not dependent on and shall not be affected in any way by any proceedings taken by the City for the making of any loan or the entering into of any agreement, or by the failure to make any loan or enter into any agreement, for which bonds are authorized to be issued under this Division. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

Subdivision 4. Supplemental Provisions

3.52.340 Liberal construction.

This Division, being necessary for the welfare of the City and its inhabitants, shall be liberally construed to effect its purposes. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

3.52.341 Effect of omission or defect.

If the jurisdiction of the Council to order the proposed act is not affected, any omission of any

officer of the City in proceedings under this Division or any other defect in the proceedings shall not invalidate such proceedings or the bonds issued pursuant to this Division. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

3.52.342 Authority.

This Division is full authority for the issuance of bonds by the City for the purposes specified herein. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

3.52.343 Provisions of this Division are complete, alternative.

This Division shall be deemed to provide a complete, additional, and alternative method for doing the things authorized thereby, and shall be regarded as supplemental and additional to the powers conferred by other laws. The issuance of bonds under the provisions of this Division need not comply with the requirements of any other law applicable to the issuance of bonds. The purposes authorized hereby may be effectuated and the bonds may be issued for any such purposes under this Division notwithstanding that any other law may provide for such purposes or for the issuance of bonds for like purposes and without regard to the requirements, restrictions, limitations or other provisions contained in any other law. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

3.52.344 Inconsistencies with other statutes.

To the extent that the provisions of this Division are inconsistent with the provisions of any general statute, a special act or parts thereof, including the Long Beach Municipal Code provisions or City Charter provisions respecting Revenue Bonds, the provisions of this Division shall be deemed controlling. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

3.52.345 Supplemental City policies.

The City Council and City staff may, from time to time, establish policies respecting the issuance of bonds hereunder, including a fee schedule for City costs and expenses and minimum requirements for ratings that are assigned to the City's bonds issued hereunder. (Ord. C-7636 § 1, 1999)

3.52.346 Partial invalidity.

If any section, subsection, sentence, clause or phrase of this Division is for any reason held to be invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of the Division. The City Council hereby declares that it would have adopted this Division and each section, subsection, sentence, clause and phrase thereof, irrespective of the fact that any one (1) or more sections, subsections, sentences, clauses or phrases be declared invalid or unconstitutional. (Ord. C-7636 § 1, 1999: Ord. C-5971 § 1 (part), 1983)

DIVISION IV. LONG BEACH ASSESSMENT DISTRICT BONDS

Subdivision 1. General Provisions and Definitions

3.52.410 Citation of Division.

This Division may be cited as the "Long Beach Assessment District Procedural Ordinance." (Ord. C-5971 § 1 (part), 1983)

3.52.412 General.

This Division is intended to provide an alternative procedure for the financing by the City of Long Beach of the acquisition or improvement of various public improvements. Such improvements may be payable in whole or in part out of the proceeds of assessments or assessment bonds, and secured by assessments to be levied against benefited property. (Ord. C-5971 § 1 (part), 1983)

3.52.414 Definitions.

Unless the context otherwise requires, the terms used in this Division shall have the following meanings:

"Acquisition," or any of its variants, means and includes the acquisition of existing improvements, authorized to be made, constructed or acquired under this Division whether or not such improvements are in existence and installed in

place on or before the date of adoption of the resolution of intention for the acquisition thereof.

"Clerk" means the City Clerk of the City of Long Beach.

"Improvement" means and includes all work, improvements, appliances or facilities which the City has the power to finance under its Charter and which are for a public purpose or which are necessary or incidental to a public purpose, including but not limited to the construction, reconstruction, maintenance and repair of all or part of any such work or improvement. "Improvements" shall also include without limitation any use or capacity rights in any improvement, electric current, gas or other illuminating agents for power or lighting service, and any real property, rights-of-way, easements or interests in real property, acquired or to be acquired by gift, purchase or eminent domain, and which are necessary or convenient in connection with the construction or operation of any work of improvement authorized to be acquired or to be made or constructed under this Division. Improvement also includes the conversion of existing electric or communication facilities and the construction, reconstruction or relocation of any other electric or communication facilities which may be incident thereto. For purposes of the preceding sentence, the terms "conversion" and "electric or communication facilities" shall have the meanings given to such terms in Section 5896.2 of the California Streets and Highways Code.

"Install," or any of its variants, includes construct, reconstruct, extend, repair and maintain.

"Legislative body" means the City Council of the City of Long Beach.

"Owner" means the person owning the fee, or the person in whose name the legal title to the property appears, by deed duly recorded in the county recorder's office, or the person in possession of the property or buildings under claim of, or exercising acts of ownership over the same for himself or herself, or as the executor, administrator, or guardian of the owner. If the property is leased, the possession of the tenant or lessee holding and occupying such property shall be deemed to be the possession of the owner.

Where the City Council determines that less than the fee interest in property is to be assessed pursuant to Section 3.52.421, "owner" shall include the person owning the interest in the property which is to be subject to the lien of the assessment, as reflected in documents duly recorded in the County Recorder's office.

"Report" means the report prepared by the City Engineer pursuant to Sections 3.52.425 and 3.52.426. (ORD-08-0007 § 1, 2008; Ord. C-5971 § 1 (part), 1983)

3.52.415 Initiation of proceedings for conversion of electric or communication facilities.

Proceedings for the financing of improvements of the character described in the third and fourth sentence of the definition of "improvement" in Section 3.52.414 shall be initiated either by a petition which describes the boundaries of the proposed assessment district, generally describes the proposed conversion and requests that proceedings for the conversion be taken pursuant to this Division, which petition is signed by the owners of land within the proposed assessment district on which more than one-half (½) of the proposed assessments are to be levied, as such owners are shown by the last equalized assessment roll used by the City or are otherwise known to the City; or a determination by the City Council that the City or a public utility has voluntarily agreed to pay over fifty percent (50%) of all costs of conversion, excluding costs of user's connections to underground electric or communication facilities. Upon presentation of the petition and a certificate by the engineer of work or City Engineer as to the sufficiency thereof, or upon the making of such determination by the City Council, the City Council may adopt a resolution of intention described in Section 3.52.420 with respect to the formation of an assessment district to finance the improvements referred to in this Section. (ORD-08-0007 § 3, 2008)

Subdivision 2. Creating District, Resolution of Intention, Report and City Contribution

3.52.420 Resolution of intention.

Whenever the public interest or convenience requires, the City Council may declare that the

City shall finance the construction, installation or acquisition of any improvement by the adoption of a resolution declaring the City's intention to finance such improvement under the provisions of this Division. The resolution of intention shall include the following information:

A. A brief description of the proposed improvements;

B. A brief description of the exterior boundaries of the proposed assessment district;

C. If applicable, provisions for the issuance of bonds to represent any unpaid assessments;

D. Provisions for the disposal of any surplus remaining in the improvement fund after the completion of the improvement. (Ord. C-5971 § 1 (part), 1983)

3.52.421 Assessment of less than fee interest.

Where the fee interest in the property to be assessed is vested in the City or another public agency and subject to satisfaction of all other applicable legal requirements, the City Council may impose the lien of the assessment against less than the fee interest, including without limitation a leasehold interest, and the resolution of intent shall describe this lesser interest to be assessed. (Ord. C-5971 § 1 (part), 1983)

3.52.422 Authority to create assessment district—Territory includable.

The City Council may make all or a designated portion of the cost and expenses of the acquisition or installation of any improvement, including construction-period interest, chargeable upon an assessment district. The City Council shall designate the assessment district in its resolution of intention, and shall declare it to be the district benefitted by the acquisition or installation and to be assessed to pay so much of the cost and expense thereof as the City Council shall determine. The territory comprising said district may, but need not, include all, or be confined to, or extend beyond, the lots and lands fronting upon the improvement, or be contiguous, and the district may consist of separate and distinct areas or sections. The work performed in one (1) section need not benefit the other section or sections. (Ord. C-5971 § 1 (part), 1983)

3.52.423 Manner of description of district.

The district may be described by:

A. Stating its exterior boundaries;

B. Giving a description thereof according to any official or recorded map; or

C. Referring to a plat or map on file in the office of the City Clerk or City Engineer at the time of passing the resolution of intention, which shall indicate by a boundary line the extent of the territory included in the proposed district, and shall govern for all details as to the extent of the assessment district. (Ord. C-5971 § 1 (part), 1983)

3.52.424 Proceedings in which description not required.

The assessment district need not be described in any of the notices, resolutions, orders or determinations provided for this Division, other than the resolution of intention. Any description of said district in such other proceedings shall be sufficient if it refers to the resolution of intention for a description of the district. (Ord. C-5971 § 1 (part), 1983)

3.52.425 Call for report.

In the resolution of intention the City Council shall refer the proposed improvement to the City Engineer to make and file with the City Clerk a report in writing. (Ord. C-5971 § 1 (part), 1983)

3.52.426 Requisites of report.

The Engineer's report shall contain:

A. A brief description of the acquisition or installation of any improvement proposed to be financed, which description may refer to any plans and specifications.

B. An estimate of the total cost of the improvement, an estimate of the amount which would be borne by the City, if any, and the amount to be assessed against the benefitted lands within the assessment district.

C. A diagram showing the assessment district, reference to assessor's parcel numbers or

other identification of parcels within the district and, if necessary, the boundaries and dimensions of the parcels or subdivisions of land within the district as they existed at the time of the passage of the resolution of intention. Each parcel or subdivision shall be given a separate number upon the diagram.

D. A proposed assessment of the total amount of the cost and expenses to be assessed upon the several parcels or subdivisions of land in the district, which assessment shall be in proportion to the estimated benefits to be received by such parcels or subdivisions, respectively, from the improvement. When any portion or percentage of the cost and expenses of the improvement is ordered to be paid out of the Treasury of the City of Long Beach or otherwise by unassessed contribution of any governmental entity, the amount of such portions or percentages shall first be deducted from the total estimated cost and expenses of the improvement, and the assessment upon the property proposed in the report shall include only the remainder of the estimated cost expenses. The assessment shall refer to the parcels or subdivisions by their respective numbers as assigned pursuant to Section 3.52.426.E.

E. If it is proposed that the lien of the assessment shall be against less than the fee interest of the land pursuant to Section 3.52.421, a description of this lesser interest. The report need not be detailed and shall be sufficient if it provides adequate information from which to identify the improvements, the cost of installation or acquisition, the boundaries of the assessment district and the manner of assessment of property within the district. (Ord. C-5971 § 1 (part), 1983)

3.52.427 Consideration of report—Modification.

The report provided for in Sections 3.52.425 and 3.52.426 shall be filed with the City Clerk and the Clerk shall present it to the City Council for consideration. The City Council may modify it in any respect. The report as modified shall stand as the report for the purpose of all subsequent proceedings except that it may be confirmed, modified, or corrected as provided in this Division. (Ord. C-5971 § 1 (part), 1983)

3.52.428 Authority for City or other governmental entities to contribute to cost.

At any time or times prior to confirmation of the assessment, the City Council may provide for a contribution or contributions by the City or other governmental entities of any part of the cost and expenses of the proposed work, and it shall not be necessary to set forth or give notice of such contribution in the resolution of intention or in any other proceedings under this Division. (Ord. C-5971 § 1 (part), 1983)

3.52.429 Appropriation of contribution by installments.

The City Council may, in its discretion, provide that any contribution being made pursuant to Section 3.52.428 may, to the extent of the fund so designated, be appropriated in such installments as the City Council may determine, provided that the total amount of such installments shall have been appropriated at or prior to the completion of the work. (Ord. C-5971 § 1 (part), 1983)

Subdivision 3. Hearing and Notice

3.52.430 Time of hearing.

After passing on the report, the City Council by resolution shall appoint a time and place for hearing protests to the proposed improvement and shall direct the City Clerk to give notice of the hearing as provided in this Division, and shall designate a daily or weekly newspaper published and circulated in the City in which the notice shall be published. The first publication of said notice shall be made not less than ten (10) days prior to the date of the public hearing stated in said resolution. The hearing shall be held not less than twenty (20) days after the passage of the resolution. (Ord. C-5971 § 1 (part), 1983)

3.52.431 Notice of improvement—Posting.

After the passage of the resolution of intention, the filing of the report, and the setting of the

time and place for hearing protests, the City Clerk shall cause notices of the passage of the resolution to be posted. The notices shall be posted conspicuously on all open streets within the district, at not more than three hundred feet (300') apart on each street so posted, but not less than three (3) in all.

The notices shall:

A. Be headed "notice of improvement," in letters of not less than one inch (1") in height;

B. In legible characters state the fact and date of passage of the resolution of intention, the filing of the report and the time and place set for hearing of protests;

C. Briefly described the improvement proposed to be financed;

D. Refer to the resolution of intention and report for further particulars;

E. All posting must be fully completed at least ten (10) days before the date set for hearing protests or objections. (Ord. C-5971 § 1 (part), 1983)

3.52.432 Publication of notices.

The City Clerk shall cause a notice similar in substance to the notice described in Section 3.52.431 to be published pursuant to Section 6066 of the Government Code. The notice shall be posted and first published at least ten (10) days before the date set for hearing of protests. (Ord. C-5971 § 1 (part), 1983)

3.52.433 Substantial compliance sufficient.

No proceeding shall be held invalid for failure to post any street or streets if Sections 3.52.432 and 3.52.434 have been substantially complied with. (Ord. C-5971 § 1 (part), 1983)

3.52.434 Notice to property owners.

At least fifteen (15) days before the date set for hearing of protests, the City Clerk shall mail, postage prepaid, notices of the adoption of the resolution of intention and the filing of the report to all persons owning real property proposed to be assessed whose names and addresses appear on the last equalized assessment roll for City taxes, as updated by the County Assessor, or who are known to the City Clerk. If it is proposed to assess less than the fee interest of the property, notice shall also be mailed to the owner of the interest proposed to be assessed. The failure of the City Clerk to mail the notice to any property owner or the failure of any property owner to receive the notice shall not affect the validity of any proceedings taken under this Division. (Ord. C-5971 § 1 (part), 1983)

3.52.435 Contents of notice to property owners.

The notice shall contain:

A. A statement of the time, place, and purpose of the hearing on the resolution of intention and report;

B. A statement of the total estimated cost of the proposed improvement, and whether such improvement is to be acquired, installed or constructed;

C. The estimated amount, as shown by the report, to be assessed against the particular parcel covered by the notice, and the legal interest in real property to be assessed;

D. A statement that any person interested may file a protest in writing as provided in this Division. (Ord. C-5971 § 1 (part), 1983)

3.52.436 Affidavit of Clerk.

Upon the completion of the mailing of the notices, the City Clerk shall file with the City Council an affidavit setting forth the time and manner of the compliance with the requirements of this Division for publishing, posting, and mailing notices. (Ord. C-5971 § 1 (part), 1983)

Subdivision 4. Protest

3.52.440 Protests.

Any interested person may object to the proposed improvement, the extent of the assessment district, or to the proposed assessment by filing a written protest with the City Clerk at or before the time set for the hearing. Such protest must contain a description of the property in which each signer thereof is interested sufficient to identify the same and, if the signers are not shown on the last equal-

ized assessment roll (as updated by the County Assessor) as the owners of such property, must contain or be accompanied by written evidence that such signers are the owners of such property or the parties to be assessed. The Clerk shall endorse on each protest the date of its receipt, and at the time appointed for the hearing shall present to the City Council all filed protests.

Any document filed as a "protest" before the City Council orders the publication of the resolution of intention shall not be considered a protest in compliance with this Division. (Ord. C-5971 § 1 (part), 1983)

3.52.441 When further proceedings barred.

If the protests are against the proposed improvement and the City Council finds that such protests are signed by the owners of more than one-half (1/2) of the area of the land included within the assessment district, all further proceedings under the resolution of intention are barred, unless the protests are overruled by an affirmative vote of two-thirds (2/3) of the members of the City Council. The City Council may confirm, modify, or reject the proposed assessment. (Ord. C-5971 § 1 (part), 1983)

3.52.442 Majority protest.

If it shall be necessary, in order to find whether a majority protest exists, to determine whether any or all of the signers of written protests are the "owners" of the property to be assessed, the City Council shall make such determination from the last equalized assessment roll, any written evidence submitted with a written protest and any other evidence received at the hearing. The City Council shall be under no duty to obtain or consider any other evidence as to ownership of the property and its determination of ownership shall be final and conclusive. (Ord. C-5971 § 1 (part), 1983)

3.52.443 Right of mortgagee or beneficiary to protest on certain acquisitions.

If the proposed improvement includes the acquisition of any improvements constructed pursuant to the provisions of the Subdivision Map Act (commencing at Section 66410, California Government Code) and such improvements were financed, in whole or in part, from the proceeds of any loan secured by a mortgage or deed of trust upon any lands within the proposed assessment district, upon submission of evidence satisfactory to the City Council of the foregoing, the mortgagee or beneficiary under any such mortgage or deed of trust may protest in the same manner and to the same extent as the owner of such lands. (Ord. C-5971 § 1 (part), 1983)

3.52.444 Protests—Confirmation of assessment.

When upon the hearing the proposed assessment is confirmed as filed, modified, or corrected, the City Council by resolution shall approve the acquisition or installation of the proposed improvement, declare that the funds collected from the assessments or sale of bonds be utilized for said purposes and declare its action upon the report and assessment. The resolution shall be final as to all persons, and the assessment thereby levied upon the respective parcels or subdivisions of land in the assessment district. (Ord. C-5971 § 1 (part), 1983)

3.52.445 Waiver of protest by unanimous consent.

Notwithstanding anything in Subdivisions 3 or 4 of this Division, the owners of property to be assessed, together with any mortgagee or beneficiary described in Section 3.52.443 may waive, by unanimous consent, the right to notice, protest and hearing provided in Subdivisions 3 and 4, in which case the City Council may confirm, modify or reject the assessment by resolution without such notice and hearing. (Ord. C-5971 § 1 (part), 1983)

Subdivision 5. Change of Work, Boundaries of Assessment District, Amounts of Assessments or Proceedings

3.52.450 Change of work, boundaries of assessment district, amounts of assessments or proceedings and construction of provisions.

Changes of work, boundaries, assessments or the like shall be permitted in accordance with the

provisions of the Municipal Improvement Act of 1913, Division 12, Chapter 4.5 of the California Streets and Highways Code, Sections 10351 through 10358. Said provisions are hereby adopted and referred to and made part of this Division with the same force and effect as though specifically set forth herein, and, as so adopted, shall be construed to conform to and be consistent with the provisions of this Division. (Ord. C-5971 § 1 (part), 1983)

Subdivision 6. Levying and Collecting the Assessment

3.52.460 Levying and collecting the assessment.

The manner in which the assessment shall be levied and collected shall be as provided in the Municipal Improvement Act of 1913, Division 12, Chapter 5 of the California Streets and Highways Code, Sections 10404 and 10425 through 10430. Said provisions are hereby adopted and referred to and made part of this Division with the same force and effect as though specifically set forth herein, and as so adopted, shall be construed to conform to and be consistent with the provisions of this Division. (Ord. C-5971 § 1 (part), 1983)

Subdivision 7. Assessment Bonds

3.52.470 Assessment bonds.

Any assessment bonds issued under this Division may be issued as provided for in the Improvement Act of 1911, Division 7, Part 5 of the California Streets and Highways Code commencing with Section 6400 thereof; or in the Improvement Bond Act of 1915, Division 10 of said Streets and Highways Code commencing with Section 8500; and except for those exceptions and amendments provided in Sections 3.52.471 through 3.52.475 of this Subdivision inclusive, are hereby adopted and referred to and made part of this Division with the same force and effect as if specifically set forth herein, and as so adopted, shall be construed to conform to and be consistent with the provisions of this Division. (Ord. C-5971 § 1 (part), 1983)

3.52.471 Provisions of Improvement Bond Act of 1915 excepted.

Sections 8502 and 8809 of the California Streets and Highways Code are expressly excluded from the operative effect of Section 3.52.470 and are inapplicable to the City of Long Beach in the context of this Division. (Ord. C-5971 § 1 (part), 1983)

3.52.472 Section 8652 of Improvement Act of 1915 amended.

Notwithstanding the provisions of Section 3.52.470, Section 8652 of the Streets and Highways Code are incorporated herein, shall read as follows:

The bonds shall be in the form prescribed by resolution of the City Council. By way of example only, the Bonds may be in substantially the following form:

CITY OF LONG BEACH
ASSESSMENT BOND
(NAME OF PROJECT)

Under and by virtue of the Long Beach Assessment District Procedural Ordinance, and that certain resolution of issuance dated _____, 19____, (the "Resolution"), the City of Long Beach (the "Issuer") will on the _____ day of _____, 19____, out of the redemption fund for the payment of the bonds issued upon the assessment made for the work upon and improvements on certain streets (or on _____ Street, or in improvement district No. _____, or on certain rights-of-way owned by, or by other suitable description), [or for the laying out, opening, extending, widening, straightening or acquiring of certain streets], as they are more particularly set forth and described in a resolution of intention passed by the City Council on the _____ day of _____, 19____, pay to, or registered assigns, the sum of _____ ($_____) with interest thereon from the interest payment date preceding the date of registration of this Bond to which interest

has been paid or duly provided for (unless this Bond is registered as of an interest payment date, in which event it shall bear interest from said date; or unless this Bond is registered after a regular record date (which shall be the _____ day of the month preceding an interest payment date) and before the following interest payment date, and if the Issuer shall not default in the payment of interest due on such interest payment date, in which event it shall bear interest from such interest payment date; or unless this Bond is registered prior to the first regular record date, in which event it shall bear interest from _____) until payment of such principal sum shall be discharged as provided in the Resolution, at the rate of _____ percent (_____%) per annum, payable on _____ in each year. The principal (or redemption price) hereof is payable upon surrender hereof at the office of the Treasurer of the City of Long Beach, California, and the interest hereon is payable by check or draft mailed to the person in whose name this Bond (or one (1) or more predecessor Bonds) is registered as of the close of business on the regular record date preceding the applicable interest payment date (subject to certain exceptions set forth in the Resolution) at such person's address as it appears on the registration books of the Trustee.

This bond is one (1) of several annual series of bonds of like date, tenor and effect, but differing in amounts and maturities, issued by the City of Long Beach under said ordinance for the purpose of providing means for paying for the work and improvement described in said resolution of intention, and is secured by the moneys in said redemption fund and by the unpaid assessments made for the payment of said work, and, including principal and interest, is payable exclusively out of said fund.

This bond is issued on the express condition that the City of Long Beach has no obligation whatsoever to include in any tax levy any amount, or to levy a special tax, for the purpose of paying any delinquent assessment or interest, or for the purpose of paying for lands purchased or to be purchased at any tax sale or foreclosure held under provisions of the aforementioned Long Beach Assessment District Procedural Ordinance, or for the purpose of paying the installment of any assessment or of interest thereon.

The interest is payable _____ to wit: On _____ in each year hereafter; provided, that the first installment is for the interest to the second day of _____, 19____, and thereafter the interest installments are for the semiannual interest.

The Bonds are issuable only as fully registered Bonds without coupons. Subject to the limitations and upon payment of the charges, if any, provided in the Resolution, Bonds may be exchanged at the office of the Treasurer of the City of Long Beach, California for a like aggregate principal amount of Bonds of other authorized denominations.

The transfer of the Bond is registrable on the registration books of the Treasurer upon surrender of this Bond for registration of transfer at the aforesaid offices of the Treasurer, duly endorsed by, or accompanied by a written instrument of transfer in form satisfactory to the Treasurer duly executed by, the registered owner hereof in person or by his attorney duly authorized in writing, but only in the manner, subject to the limitations and upon payment of the charges, if any, provided in the Resolution. Upon such registration of transfer a new Bond or Bonds, of any authorized denomination or denominations, of the same maturity for the same aggregate principal amount, will be issued to the transferee in exchange herefor.

The Issuer and the trustee, if any, may treat the person in whose name this Bond is regis-

tered as the absolute owner hereof for all purposes, and the Issuer and such trustee shall not be affected by any notice to the contrary.

This bond will continue to bear interest after maturity at the rate above stated; provided, it is presented at maturity and payment therefor is refused upon the sole ground that there are not sufficient monies in said redemption fund with which to pay same. If it is not presented at maturity interest thereon will run until maturity.

This bond may be redeemed and paid in advance of maturity upon the _____ day of _____ in any year by giving the notice provided in the Resolution and by paying principal and accrued interest together with a premium [if applicable] equal to _____.

In witness whereof, said _____ of _____ has caused this bond to be signed by the Treasurer of the City of Long Beach and by the City Clerk and has caused the City Clerk to affix thereto its corporate seal all on the _____ day of _____, 19____.

_____
City Treasurer

_____
City Clerk

(Ord. C-5971 § 1 (part), 1983)

3.52.473 Section 8804 of Improvement Bond Act of 1915 amended.

Notwithstanding the provisions of Section 3.52.470, Section 8804 of the Streets and Highways Code as incorporated herein, shall read as follows:

The City Council may, but need not, direct, in the proceedings for the issuance of the bonds, that, notwithstanding the provisions of Section 8805 of the California Streets and Highways Code, the City shall, unless a resale has been made by it, from time to time when due pay and transfer into the redemption fund from such funds as may be available at the end of any fiscal year the amount of any future delinquent installments of the assessment and interest thereon pending redemption, and no redemption shall be made until any such subsequent payments, with interest and penalties, shall also be paid. If there are no available funds in the Treasury of the City of Long Beach with which to make payment of the amount of the delinquent assessment and interest for which the property was sold, the tax collector or City Treasurer—Revenue Officer shall delay the entry of the certificate of sale until such funds are available. However, the period of redemption from such tax sale shall not be extended thereby nor shall the rights or privileges of the property owner be in any way affected.

(Ord. C-5971 § 1 (part), 1983)

3.52.474 Section 8806 of the improvement Bond Act of 1915 amended.

Notwithstanding the provisions of Section 3.52.470, Section 8806 of the Streets and Highways Code as incorporated herein, shall read as follows:

The City Council may, but need not, direct in the proceedings for the issuance of the Bonds that, notwithstanding the provisions of Section 8805 of the California Streets and Highways Code, the City shall, unless a resale has been made by it, from time to time when due pay and transfer into the redemption fund from such funds as may be available at the end of any fiscal year the amount of any future delinquent installments of the assessment and interest thereon pending redemption, and no redemption shall be made until any such subsequent payments, with interest and penalties, shall also be paid.

(Ord. C-5971 § 1 (part), 1983)

3.52.475 Section 8650 of the Improvement Bond Act of 1915 amended.

Notwithstanding the provisions of Section 3.52.470, Section 8650 of the Streets and Highways Code as incorporated herein, shall read as follows:

> Except as the City Council body shall provide otherwise under Section 8650.1, the bonds shall be issued in series and a portion of the aggregate principal sum thereof shall be payable annually commencing not later than 3 years from the date of issue. The bonds shall bear interest at a rate or rates to be fixed by the City Council from the 31st day after recording the assessment, or from their date if the work was done under the Municipal Improvement Act of 1913, on all sums unpaid, until the whole of the principal sum and interest are paid.
>
> Interest shall be payable at the times and in the manner provided by resolution of the City Council.

(Ord. C-5971 § 1 (part), 1983)

3.52.476 Previously initiated proceedings.

The City Council may determine that assessment bonds shall be issued as provided in this Subdivision 7 represent and be secured by assessments which shall be made to pay the cost of any improvement which is made in any of the streets, avenues, lanes, alleys, courts, public places or public ways of the City, or in, over, or through any property or rights-of-way owned by the City, and which is authorized in proceedings initiated either prior to or subsequent to the effective date of this Division, by the Municipal Improvement Act of 1913, Division 12 of the California Streets and Highways Code or by the improvement Act of 1911, Division 7 of the California Streets and Highways Code or which is made to pay the cost of any other improvement which is charged and assessed upon real property pursuant to any other provision of law, including any other provision of the Long Beach Municipal Code. (Ord. C-5971 § 1 (part), 1983)

Subdivision 8. Urgency Proceedings

3.52.480 Urgency proceedings.

In the event there is an urgent need to proceed with an improvement, the acquisition, construction, repair or installation of which is required to be commenced in advance of the completion of assessment proceedings under this Division, the City Council may declare that such an urgent need exists for the acquisition and improvements and by resolution may direct that the City proceed with the project and that funds be advanced therefor. Thereafter, the City shall cause assessment proceedings to be instituted under this Division.

At the completion of such proceedings, the assessments collected, either in cash or through the sale of bonds, may be paid directly to the City in reimbursement of funds advanced by the City. (Ord. C-5971 § 1 (part), 1983)

Subdivision 9. Miscellaneous

3.52.490 Rules of construction.

This Division shall be liberally construed in order to effectuate its purposes. No error, irregularity, informality and no neglect or omission of any officer, in any procedure taken under this Division, which does not directly affect the jurisdiction of the City Council to order the work or improvement, shall avoid or invalidate such proceeding or any assessment for the cost of work done thereunder. The exclusive remedy of any person affected or aggrieved thereby shall be by appeal to the City Council in accordance with the provisions of this Division. (Ord. C-5971 § 1 (part), 1983)

3.52.492 Resumption of hearings not regularly adjourned.

Whenever in any proceedings under this Division, a time and place for any hearing by the City Council is fixed and, from any cause, the hearing is not then and there held or regularly adjourned to a time and place fixed, the power of the City Council in the premises shall not thereby be divested or lost, but the City Council may proceed anew to fix a time and place for the hearing, and cause notice

thereof to be given by publication by at least one (1) insertion in a daily, semiweekly or weekly newspaper, such publication to be at least five (5) days before the date of the hearing, and thereupon the City Council shall have power to act as in the first instance. (Ord. C-5971 § 1 (part), 1983)

3.52.494 Nonexclusiveness of division.

This Division is not exclusive. The City Council shall have power to provide other procedures or to follow procedures and powers now or hereafter provided by general law for the financing of improvements authorized hereunder. The procedures and powers herein are alternative to such other procedures and powers. When proceeding under this Division, its provisions only need to be followed. (Ord. C-5971 § 1 (part), 1983)

3.52.496 Incorporation effect.

When provisions of general law or acts are incorporated in this Division, such incorporation shall be interpreted to mean the wording of the general law or acts then in effect at the date the City Council adopts its resolution of intention to participate in a project, unless the City Council shall provide otherwise. (Ord. C-5971 § 1 (part), 1983)

3.52.498 Necessary or convenient procedure authorized.

Any procedure not expressly set forth in this Division but deemed necessary or convenient to carry out any of its purposes is authorized. (Ord. C-5971 § 1 (part), 1983)

DIVISION V. SPECIAL TAX FINANCING IMPROVEMENT PROCEDURES

Subdivision 1. General Provisions

3.52.511 Short title.

This Division shall be known and may be cited as the "Long Beach Special Tax Financing Improvement Law." (Ord. C-6611 § 1, 1989)

3.52.512 Municipal and State affairs—Authority conferred by Division—Applicability of laws.

In any proceedings undertaken pursuant to this Division as municipal affairs, any general laws referred to in this Division are deemed a part of this Division.

In the event that any proceeding undertaken pursuant to this Division shall be adjudged a State affair it shall be declared and deemed to be intended that the proceedings were had pursuant to any applicable general law or laws.

This Division provides an alternative method of financing certain public and private capital facilities and municipal services. The provisions of this Division shall not affect or limit any other provisions of law authorizing or providing for the furnishing of facilities or services, or the raising of revenue for these purposes. The City may use the provisions of this Division instead of or in conjunction with any other method of financing part or all of the cost of providing the authorized kinds of public and private capital facilities and municipal services. (Ord. C-6611 § 1, 1989)

3.52.513 Conflicting provisions—Severability.

A. Any provision in this Division which conflicts with any general law or act shall prevail over the other such provision in connection with any proceedings taken pursuant to this Division.

B. In the event any portion of this Division shall be declared illegal, unenforceable, or unconstitutional, such provision shall be deemed severable from the rest of the provisions of this Division. (Ord. C-6611 § 1, 1989)

3.52.514 Actions or determinations—Proceedings.

The City Council may take any actions or make any determinations which it determines are necessary or convenient to carry out the purposes of this Division and which are not otherwise prohibited by law. (Ord. C-6611 § 1, 1989)

3.52.515 Definitions.

Unless the context otherwise requires, the definitions contained in this Section shall govern the construction of this Division.

A. "Clerk" means the City Clerk of the City of Long Beach.

B. "Community facilities district" or "district" means a district established pursuant to this Division for the purpose of financing facilities and/or services.

C. "Cost" means the expense of constructing or purchasing the facility and of related land, right-of-way, easements, including incidental expenses, and the cost of providing authorized services, including incidental expenses.

D. "Debt" means any binding obligation to repay a sum of money, including obligations in the form of bonds, certificates of participation, long-term leases, loans from government agencies, or loans from banks, other financial institutions, private businesses or individuals.

E. "Incidental expense" includes all of the following:

1. The cost of planning and designing facilities to be financed pursuant to this Division, including the cost of environmental evaluations of those facilities;

2. The costs associated with the creation of the district, issuance of bonds, determination of the amount of taxes, collection of taxes, payment of taxes, or costs otherwise incurred in order to carry out the authorized purposes of the district;

3. Any other expenses incidental to the management, administration, completion, and inspection of the construction and/or acquisition of the facilities.

F. "Landowner" or "owner" or "owner of land" means any person shown as the owner of land on the last equalized assessment roll or otherwise known to be the owner of the land by the City Clerk. Notwithstanding the foregoing, "landowner" or "owner" or "owner of land" means, with respect to any land which is the subject of condemnation action, the person entitled to possession of the land. The City Council has no obligation to obtain other information as to the ownership of the land, and its determination of ownership shall be final and conclusive for the purposes of this Division. The City or any other public agency is not a landowner or owner of land for purposes of this Division, unless the land owned by the City or any public agency or any leasehold therein would be subject to a special tax levied pursuant to this Division as provided in Sections 3.52.5113 or 3.52.5114.

G. "Legislative body" means the legislative body or governing board of any local agency, and with respect to the City shall mean the City Council.

H. "Local agency" means any City or County, whether general law or chartered, special district, redevelopment agency, school district, joint powers entity created pursuant to Chapter 5 (commencing with Section 6500) of Division 7 of Title 1, or any other municipal corporation, district, or political subdivision of the State.

I. "Rate" means a single rate of tax or a schedule of rates. (Ord. C-6611 § 1, 1989)

3.52.516 Establishment of a community facilities district to finance certain services.

A community facilities district may be established under this Division to finance any one (1) or more municipal services within an area including, but not limited to, the following:

A. Police protection services, including, but not limited to, criminal justice services. Criminal justice services shall not be limited to providing services for jails, detention facilities, and juvenile halls;

B. Fire protection and suppression services, and ambulance and paramedic services;

C. Recreation program services, library services and the operation and maintenance of parks, parkways, open space, and museums and cultural facilities;

D. Flood and storm protection services, including, but not limited to, the operation and maintenance of storm drainage systems;

E. Maintenance of sanitary sewer system facilities and storm drainage facilities of the City

including, but not limited to, sanitary sewer mains, laterals, manholes, pump stations, and appurtenances of the City to convey, treat, and dispose of sewage, and all storm drainage lines, mains, inlets, channels and all appurtenances of the system of the City designed to convey storm waters by cleaning, repairing and removal of debris, rubbish and other solid waste;

F. Any other municipal services which the City is authorized by law to provide.

For purposes of this Division, municipal services that may be financed include the performance by employees of functions, operations, maintenance and repair activities. (Ord. C-6611 § 1, 1989)

3.52.517 Other financing powers of a community facilities district.

A community facilities district may also finance the purchase, construction, expansion, improvement or rehabilitation of any real or other tangible property with an estimated useful life of three (3) years or longer or may finance planning and design work which is directly related to the purchase, construction, expansion or rehabilitation of any real or tangible property. The facilities need not be physically located within the district. A district may finance the purchase of facilities whose construction has been completed before or after the adoption of the resolution of formation if the facility is or was constructed pursuant to plans approved by the City, and the facility is inspected by the City and found to be in compliance with applicable City building codes and standards. For example, a community facilities district may finance facilities, including, but not limited to, the following:

A. Local park, recreation, parkway, and open space facilities;

B. Elementary and secondary school sites and structures;

C. Libraries;

D. The district may also finance the construction or undergrounding of natural gas pipeline facilities, telephone lines, facilities for the transmission or distribution of electrical energy, and cable television lines. The district may enter into an agreement with a public utility to utilize those facilities to provide a particular service and for the conveyance of those facilities to the public utility. Any reimbursement by the public utility made to the district shall be utilized to reduce or minimize the special tax levied within the district or improvement area, or to construct or acquire additional facilities within the district or improvement area, as specified in the resolution of formation;

E. The district may also pay in full all amounts necessary to eliminate any fixed special assessment lines or to repay or defease any indebtedness secured by any tax, fee, charge, or assessment levied within the area of a community facilities district or may pay debt service on that indebtedness;

F. Improvements to or rehabilitation of real property related to fire suppression and/or asbestos removal;

G. Any other facilities, public or private, which the City is authorized by law to contribute revenue to, or construct, own or operate. (Ord. C-6611 § 1, 1989)

3.52.518 School facilities financed by a community facilities district—Cost sharing by State Allocation Board—Ownership transferred to State—Savings.

A. All or any part of the cost of any school facilities financed by a community facilities district may be shared by the State Allocation Board pursuant to Section 17718.5 of the California Education Code.

B. If the State Allocation Board shares in any part of the cost of the school facilities, the ownership of those facilities and the real property upon which the facilities are located shall be transferred to the State of California. A copy of the deed by which the title is transferred shall be recorded in the office of the County Recorder of the County in which the property is located. The deed shall be indexed by the County recorded in the grantor-grantee index to the name of the school district as

grantor and to the State of California as grantee. In addition, the community facilities district shall take one (1) or more of the following actions:

1. Reduce the amount of bonds authorized to be issued by the community facilities district;

2. Reduce the amount of any special tax which is levied within the community facilities district;

3. Reduce the amount of outstanding bonds or provide for the defeasance of outstanding bonds;

4. Shorten the period of time during which a special tax is levied within the community facilities district.

C. The amount of savings achieved pursuant to the actions taken in accordance with Subsection B of this Section shall be in an amount equal to the amount of costs shared by the State Allocation Board pursuant to Section 17718.5 of the California Education Code.

D. The City Council hereby finds and declares that this Section 3.52.518 is intended to be in furtherance and not in derogation of education and school financing, and thus an appropriate part of this Division despite the fact that education is a State affair. (Ord. C-6611 § 1, 1989)

3.52.519 Transfer of funds—Use of money—Interest.

The City Council may from time to time transfer moneys to a community facilities district or to a zone within a community facilities district, for the benefit of the district or zone, from any funds available to the City. The City Council also may appropriate any of the City's available moneys to a revolving fund to be used for the acquisition of real or personal property, engineering or other services, or the construction of structures or improvements needed in whole or in part to provide one (1) or more of the facilities or services of a community facilities district.

The district may reimburse the City for any amount transferred or appropriated pursuant to this Section 3.52.519, together with interest at the rate per annum, as determined by the City Council. (Ord. C-6611 § 1, 1989)

3.52.5110 Advances of funds or work in-kind—Acceptance by legislative body—Use—Repayment—Agreement—Conditions.

A. At any time either before or after the formation of a community facilities district, the City Council may accept advances of funds or work in-kind from any source, including, but not limited to, private persons or private entities and may provide for the use of those funds or that work in-kind for any authorized purpose, including, but not limited to, paying any cost incurred by the City in creating a community facilities district. The City Council may enter into an agreement with the person or entity advancing the funds or work in-kind to repay all or a portion of the funds advanced, or to reimburse the person or entity for the value, or cost, whichever is less, of the work in-kind, as determined by the City Council, with or without interest, under all of the following conditions:

1. The proposal to repay the funds or the value or cost of the work in-kind, whichever is less, is included in the resolution of intention or the resolution of formation to establish the district, or in the resolution of consideration to alter the types of public facilities and services provided within an established district;

2. Any proposed special tax or change in special tax is approved by the qualified electors of the district pursuant to this Division. Any agreement may specify that if the qualified electors of the district do not approve the proposed special tax or change in a special tax, the local agency shall return any funds which have not been committed for any authorized purpose by the time of the election to the person or entity advancing the funds;

3. Any work in-kind accepted pursuant to this Section shall have been performed or constructed pursuant to plans approved by the City, and the work in-kind shall be inspected by the City and found to be in compliance with applicable City building codes and standards.

B. Any such agreement shall not constitute a debt or liability of the City. (Ord. C-6611 § 1, 1989)

3.52.5111 Liberal construction of Division—Error—Irregularity, neglect or omission.

This Division shall be liberally construed in order to effectuate its purposes. No error, irregularity, informality, and no neglect or omission of any officer, in any procedure taken under this Division, which does not directly affect the jurisdiction of the City Council to order the installation of the facility or the provision of service, or the levy of the special taxes, shall void or invalidate such proceeding or any levy for the costs of a facility or service. (Ord. C-6611 § 1, 1989)

3.52.5112 Failure to receive notice, resolution, order, or other matter not affecting proceedings.

The failure of any person to receive a notice, resolution, order, or other matter shall not affect in any way whatsoever the validity of any proceedings taken under this Division, or prevent the legislative body from proceeding with any hearing so noticed. (Ord. C-6611 § 1, 1989)

3.52.5113 Special tax—Property acquired by public entity through negotiated transaction or by gift or devise—Voluntary application of special tax.

If property not otherwise exempt from a special tax levied pursuant to this Division is acquired by a public entity through a negotiated transaction, or by gift or devise, the special tax shall, notwithstanding Section 3.52.551, continue to be levied on the property acquired and shall be enforceable against the public entity that acquired the property.

Notwithstanding any other provision of this Division, any public agency other than a City, county or school district may subject property owned by it to the levy of special taxes, if it shall certify to the City Council: (a) its agreement to do so, (b) that it intends to dispose of such property by transfer to a nongovernmental agency at some time in the future, and (c) that it agrees to cooperate in the sale of the property if necessary to obtain funds to pay any special taxes levied upon such property. (Ord. C-6611 § 1, 1989)

3.52.5114 Special tax—Special assessment on property acquired by public entity through eminent domain.

If property subject to a special tax levied pursuant to this Division is acquired by the City or any public entity or entities through eminent domain proceedings, the obligation to pay the special tax shall be treated, pursuant to Section 1265.250 of the California Code of Civil Procedure as if it were a special annual assessment. For this purpose, the present value of the obligation to pay a special tax to pay the principal and interest on any indebtedness incurred by the district prior to the date of apportionment determined pursuant to Section 5082 of the California Revenue and Taxation Code shall be treated the same as a fixed lien special assessment. (Ord. C-6611 § 1, 1989)

3.52.5115 Application of Division—Municipal officials—Powers and duties.

This Division applies insofar as the City has the power to install or contribute revenue for any of the facilities or provide or contribute revenue for any of the services authorized under this Division. The officers of the City who have similar powers and duties as the municipal officers referred to in this Division shall have the powers and duties given by this Division to the municipal officials. Where no similar officer exists, the City Manager of the City shall appoint a person or designate an officer to perform the duties under this Division. (Ord. C-6611 § 1, 1989)

3.52.5116 Joint community facilities agreement or joint exercise of powers agreement.

A. The City Council may enter into a joint community facilities agreement with any other local agency pursuant to this Division or into a joint exercise of powers agreement pursuant to Chapter 5 (commencing with Section 6500) of Division 7 of Title 1 of the California Government Code to exercise any power authorized by

this Division if the City Council adopts a resolution declaring that such a joint agreement would be beneficial to the residents of the City or the district.

B. Notwithstanding Chapter 5 (commencing with Section 6500) of Division 7 of Title 1 of the California Government Code, a contracting party may use the proceeds of any special tax or charge levied pursuant to this Division or of any bonds or other indebtedness issued pursuant to this Division to provide facilities or services which that contracting party is otherwise authorized by law to provide, even though another contracting party does not have the power to provide those facilities or services.

C. The agreement entered into pursuant to this Section 3.52.5116 may provide for the division of responsibility to provide any of the facilities or services among the entities entering into the agreement. The agreement shall provide for the allocation and distribution of the proceeds of any special tax levy among the parties to the agreement. (Ord. C-6611 § 1, 1989)

Subdivision 2. Proceedings to Create a Community Facilities District

3.52.521 Institution of proceeding—Request—Petition—Fee.

Proceedings for the establishment of a community facilities district may be instituted by the City Council on its own initiative and shall be instituted by the City Council when any of the following occurs:

A. A written request for the establishment of a district, signed by two (2) members of the legislative body, describing the boundaries of the territory which is proposed for inclusion in the district and specifying the type or types of facilities and/or services to be financed by the district, is filed with the legislative body;

B. A petition requesting the institution of the proceedings signed by the requisite number of registered voters, as specified in Subsection D of Section 3.52.523, is filed with the City Clerk. The petition may consist of any number of separate instruments, each of which comply with all of the requirements of the petition, except as to the number of signatures;

C. A petition requesting the institution of the proceedings signed by landowners owning the requisite portion of the area of the proposed district, as specified in Subsection D of Section 3.52.523, is filed with the City Clerk.

The written request filed pursuant to Subsection A of this Section and the petitions filed pursuant to Subsections B and C of this Section shall be accompanied by the payment of a fee in an amount which the Finance Director determines is sufficient to compensate the City for all costs incurred in conducting proceedings to create a district pursuant to this Division, and shall not be considered received until such payment has been made to the City. (Ord. C-6611 § 1, 1989)

3.52.522 Prohibition of LAFCO from review, approval or disapproval of creation of or annexation or detachment of territory from a district.

Notwithstanding Paragraph (2) of Subdivision (a) of Section 54790 of the California Government Code, a local agency formation commission shall have no power or duty to review and approve or disapprove a proposal to create a community facilities district or a proposal to annex territory to, or detach territory from, such district, pursuant to this Division. (Ord. C-6611 § 1, 1989)

3.52.523 Petition—Contents—Findings as to requisite number of signers.

A petition requesting the institution of proceedings for the establishment of a community facilities district shall do all of the following:

A. Request the City Council to institute proceedings to establish a community facilities district pursuant to this Division;

B. Describe the boundaries of the territory which is proposed for inclusion in the district;

C. Generally state the type or types of facilities and/or services to be financed by the district;

D. Be signed by not less than ten percent (10%) of the registered voters residing within the

territory proposed to be included within the district or by owners of not less than ten percent (10%) of the area of land proposed to be included within the district.

If the City Council finds that the petition is signed by the requisite number of registered voters residing within the territory proposed to be included within the district or by the requisite number of owners of land proposed to be included within the district, that finding shall be final and conclusive. (Ord. C-6611 § 1, 1989)

3.52.524 Resolution of intention to establish district—Time for adoption.

Within six (6) months after either a written request by two (2) members of the City Council or a petition requesting the institution of proceedings for the establishment of a community facilities district is filed with the City Clerk, it shall adopt a resolution of intention to establish a community facilities district in the form specified in Section 3.52.525. (Ord. C-6611 § 1, 1989)

3.52.525 Resolution of intention to establish district—Contents.

Proceedings for the establishment of a community facilities district shall be instituted by the adoption of a resolution of intention to establish the district which shall do all of the following:

A. State that a community facilities district is proposed to be established under the terms of this Division and describe the boundaries of the territory proposed for inclusion in the district, which may be accomplished by a reference to a map on file in the office of the City Clerk, showing the proposed community facilities district;

B. State the name proposed for the district in substantially the following form: "Community Facilities District No. _____ of the City of Long Beach";

C. Generally state the type or types of facilities and/or services proposed to be financed by the district pursuant to this Division. If the purchase of completed facilities or the incurring of incidental expenses is proposed, the resolution may identify those facilities or expenses;

D. State that, except where funds are otherwise available, a special tax sufficient to pay for all facilities and/or services, secured by recordation of a continuing lien against all nonexempt real property in the district, will be annually levied within the area of the district. The resolution shall specify the rate and method of apportionment and manner of collection of the special tax in sufficient detail to allow each landowner or resident within the proposed district to estimate the maximum amount that he or she will have to pay;

E. Fix a time and place for a public hearing on the establishment of the district which shall not be less than ten (10) or more than sixty (60) days after the adoption of the resolution and direct the giving of notice as provided in Section 3.52.527 and, if desired, Section 3.52.528 hereof;

F. Direct the preparation and filing of the report under Section 3.52.526 hereof;

G. Contain a description of the proposed voting procedure. (Ord. C-6611 § 1, 1989)

3.52.526 Report and estimate of costs by responsible officers—Part of hearing record.

At the time of the adoption of the resolution of intention to establish a community facilities district, the City Council shall direct the Finance Director or another appropriate officer to file or cause to be prepared and filed at or before the time of the hearing, a report with the City Clerk containing a brief description of the facilities and services proposed to be financed by type and an estimate of the cost of providing those facilities and services, together with an estimate of the costs of any bond issuance and the City's administration of the district. If the purchase of completed facilities or the payment of incidental expenses is proposed, the report shall contain an estimate of the cost of those facilities or incidental expenses. The report shall be made a part of the record of the hearing on the resolution of intention to establish the district. (Ord. C-6611 § 1, 1989)

3.52.527 Required notice of hearing.

A. The City Clerk shall publish a notice of the hearing once in a newspaper of general circu-

lation in the proposed district. Publication shall be complete at least seven (7) days prior to the date of the hearing.

B. The notice shall contain all of the following information:

1. The text of the resolution of intention to establish the district;

2. The time and place of the hearing on the establishment of the district;

3. A statement that at the hearing the testimony of all interested persons or taxpayers for or against the establishment of the district, the extent of the district, or the furnishing of specified types of facilities and/or services will be heard. The notice shall also describe, in summary, the effect of protests made by registered voters or landowners against the establishment of the district, the extent of the district, the furnishing of a specified type of facilities or services, or a specified special tax, as provided in Section 3.52.5210;

4. A description of the proposed voting procedure. (Ord. C-6611 § 1, 1989)

3.52.528 Optional notice of hearing.

The City Council may also direct the City Clerk to give notice of the hearing by first-class mail to each registered voter and to each landowner within the proposed district. This notice shall be mailed at least ten (10) days before the hearing and shall contain the same information as is required to be contained in the notice published pursuant to Section 3.52.527, except that the entire text of the resolution of intention may be omitted if the date, number and fact of its adoption are shown and the proposed facilities and/or services are briefly described and the proposed amounts and method of apportionment of the special tax are shown. (Ord. C-6611 § 1, 1989)

3.52.529 Protests—Interested persons or taxpayer.

At the hearing, protests against the establishment of the district, the extent of the district, or the furnishing of specified types of facilities or services within the district may be made orally or in writing by any interested persons or taxpayers. Any protests pertaining to the regularity or sufficiency of the proceedings shall be in writing and shall clearly set forth the alleged irregularities and defects. To be counted under Section 3.52.5210 any written protest shall be filed with the City Clerk on or before the time fixed for the hearing. The City Council may waive any irregularities in the form or content of any written protest and at the hearing may correct minor defects in the proceedings. Written protests may be withdrawn in writing at any time before the conclusion of the hearing. (Ord. C-6611 § 1, 1989)

3.52.5210 Written protest—Further proceedings to create district—Elimination of special tax or types of facilities or services from resolution of formation.

If fifty percent (50%) or more of the registered voters, or six (6) registered voters, whichever is more, residing within the territory proposed to be included in the district, or the owners of one-half (1/2) or more of the area of the land in the territory proposed to be included in the district and not exempt from the special tax, file written protests against the establishment of the district, and protests are not withdrawn so as to reduce the value of the protests to less than a majority, no further proceedings to create the specified community facilities district or to levy the specified special tax shall be taken for a period of six (6) months from the date of the decision of the City Council.

If the majority protests are only against the furnishing of a specified type or types of facilities or services within the proposed district, or against levying a specified special tax, those types of facilities or services or the specified special tax shall be eliminated from the resolution of formation. (Ord. C-6611 § 1, 1989)

3.52.5211 Hearing—Continuances—Time limitation—Exception—Modification of resolution of intention—Determination to abandon or proceed with establishment of district.

The hearing may be continued from time to time without further notice under Sections 3.52.527

or 3.52.528, but shall be completed within six (6) months of the original hearing date. The City Council may modify the resolution of intention by eliminating proposed facilities or services, or by changing the rate or method of apportionment of the proposed special tax so as to reduce the maximum special tax to be levied on all or a portion of the property within the proposed district, or by removing territory from the proposed district. At the conclusion of the hearing, the City Council may abandon the proposed establishment of the community facilities district or may, after passing upon all protests, determine to proceed with establishing the district, except as provided in Section 3.52.5210 hereof. (Ord. C-6611 § 1, 1989)

3.52.5212 Adoption of resolution of formation establishing district—Contents—Finding concerning validity and conformity of prior proceedings.

If the City Council determines to establish the district, it shall adopt a resolution of formation establishing the district. The resolution of formation shall incorporate by reference all of the information required to be included in the resolution of intention to establish the district specified in Section 3.52.525. If a special tax is proposed to be levied in the district to pay for any facilities and/or services and the special tax has not been eliminated by majority protest pursuant to Section 3.52.5210, the resolution shall state that fact and all of the following:

A. Determine whether all proceedings were valid and in conformity with the requirements of this Division, which finding shall be final and conclusive;

B. State that the proposed special tax to be levied within the district has not been precluded by majority protest pursuant to Section 3.52.5210;

C. Identify any facilities and/or services, as may be changed under Sections 3.52.5210 or 3.52.5211 hereof, proposed to be funded with the proceeds of the special tax;

D. Set forth the proposed rate and method of apportionment of the special tax;

E. Set forth the name, address, and telephone number of the office, department, or bureau of the City which will be responsible for preparing annually a current roll of special tax levy obligations by assessor's parcel number and which will be responsible for estimating future special tax levies pursuant to Section 3.52.552;

F. State that upon recordation of a notice of special tax lien pursuant to Section 3114.5 of the California Streets and Highways Code, a continuing lien to secure each levy of the special tax shall attach to all nonexempt real property in the district and this lien shall continue in force and effect until the special tax obligation is prepaid and permanently satisfied and the lien canceled in accordance with law or until collection of the tax by the City Council ceases;

G. Set forth the County of recordation and the book and page in the Book of Maps of Assessments and Community Facilities Districts in the County Recorder's office where the boundary map of the proposed community facilities district has been recorded pursuant to Sections 3111 and 3113 of the California Streets and Highways Code;

H. Provide for the conduct of the election required under Section 3.52.5217 hereof;

I. At the option of the City Council, provide for the establishment of or change in the appropriations limit under Section 3.52.5216 hereof. (Ord. C-6611 § 1, 1989)

3.52.5213 Special tax—Basis for apportionment.

A tax imposed pursuant to this Division is a special tax and not a special assessment, and there is no requirement that the tax be apportioned on the basis of benefit to any property. However, a special tax levied pursuant to this Division may be on or based on benefit received by parcels of real property, the cost of providing facilities and/or services available to each parcel, or any other reasonable basis as determined by the City Council. A special tax apportioned on any of these bases shall not be construed to be on or based upon the ownership of real property. (Ord. C-6611 § 1, 1989)

3.52.5214 Noncontiguous areas—Alteration of boundaries.

A. A community facilities district may include areas of territory that are not contiguous.

B. In establishing the boundaries of the district, the City Council may alter the exterior boundaries of the district to include less territory than that described in the recorded boundary map but it may not include any territory not described in that map. (Ord. C-6611 § 1, 1989)

3.52.5215 Boundaries of district—Inclusion of lands devoted to agricultural, timber or livestock uses.

Land devoted primarily to agricultural, timber, or livestock uses and being used for the commercial production of agricultural, timber or livestock products may be included in a community facilities district only if such land is contiguous to other land which is included within the described exterior boundaries of the community facilities district, and only if the legislative body finds that the land will be benefited by any of the types of public facilities and service proposed to be provided within the district. The land may, however, be included in the community facilities district, if the owner requests its inclusion. (Ord. C-6611 § 1, 1989)

3.52.5216 Establishment or changing appropriations limit—Election on propositions, adjustment.

The City Council may submit a proposition to establish or change the appropriations limit, as defined by Subdivision (h) of Section 8 of Article XIII B of the California Constitution, of a community facilities district to the qualified electors of a proposed or established district. The proposition establishing or changing the appropriations limit shall become effective if approved by the qualified electors voting on the proposition and shall be adjusted for changes in the cost of living and changes in populations, as defined by Subdivisions (b) and (c) of Section 7901 of the California Revenue and Taxation Code, except that the change in population may be estimated by the legislative body in the absence of an estimate by the State of California Department of Finance, and in accordance with Section 1 of Article XIII B of the California Constitution. For purposes of adjusting for changes in population, the population of the district shall be deemed to be at least one (1) person during each calendar year. (Ord. C-6611 § 1, 1989)

3.52.5217 Special tax levy—Election—Voter qualifications—Ballots.

A. By resolution, the City Council shall submit the levy of any special taxes to the qualified electors of the proposed community facilities district in the next general election or in a special election to be held, notwithstanding any other requirement, including any requirement that elections be held on specified dates contained in the California Elections Code, at least five (5) days, but not more than one hundred eighty (180) days, following the adoption of the resolution of formation. The legislative body shall provide the resolution of formation, a certified map of sufficient scale and clarity to show the boundaries of the district, and a sufficient description to allow the election official to determine the boundaries of the district to the official conducting the election after the adoption of the resolution of formation, if requested by the official conducting the election. Assessor's parcel numbers for the land within the district shall be included if it is a landowner election or the district does not conform to an existing district's boundaries, if requested by the official conducting the election. If the election is to be held less than one hundred twenty-five (125) days following the adoption of the resolution of formation, and the election official is other than the City Clerk the concurrence of the election official conducting the election shall be required. However, any time limit specified by this Section or requirement pertaining to the conduct of the election may be waived with the unanimous consent of the qualified electors of the proposed district and the concurrence of the election official conducting the election. In the event of such unanimous waiver, the election official shall be the City Clerk.

B. Except as otherwise provided in Subsection C of this Section, if at least twelve (12) persons, who need not necessarily be the same twelve (12) persons, have been registered to vote within the territory of the proposed community facilities district for each of the ninety (90) days preceding the date of the protest hearing, the vote shall be by the registered voters of the proposed district, with each voter having one (1) vote. Otherwise, the vote shall be by the landowners of the proposed district and each landowner who is the owner of record at the close of the protest hearing, or the authorized representative thereof, shall have one (1) vote for each acre or portion of an acre of land that he or she owns within the proposed community facilities district. The number of votes to be voted by a particular landowner shall be specified on the ballot provided to that landowner. Notwithstanding the foregoing, if the vote is to be by the landowners of the proposed district as described in the second preceding sentence, as an alternative to having such landowner have one (1) vote for each acre or portion of an acre of land that a landowner owns within the proposed community facilities district, the legislative body may provide that each landowner have a vote for each dollar of special tax that may be levied on such landowner's land to be included in the proposed community facilities district, based upon the proposed rate and method of apportionment and manner of collection of special tax for the proposed community facilities district, and the special taxes thereby to be levied in the first full fiscal year following formation of the proposed community facilities district; provided that the legislative body finds that such alternative method of voting is more reflective of the burden of the special tax to be levied in the proposed community facilities district.

C. If the proposed special tax will not be apportioned in any tax year on any portion of property in the district in residential use in that tax year, as determined by the legislative body, the legislative body may provide that the vote shall be by the landowners of the proposed district whose property would be subject to the tax if it were levied at the time of the election. Each of these landowners shall have one (1) vote for each acre, or portion thereof, that the landowner owns within the proposed district which would be subject to the proposed tax if it were levied at the time of the election.

D. Ballots for the special election authorized by Subsection A of this Section may be distributed to qualified electors by mail with return postage prepaid or by personal service by the election official. The election official may provide a certificate of the proper mailing or delivery of ballots, which certificate shall constitute conclusive proof of mailing or delivery in the absence of fraud. The voted ballots shall be returned to the election officer conducting the election not later than the time specified in the resolution calling the election. However, if all the qualified voters have voted, the election shall be closed. (ORD-08-0007 § 2, 2008; Ord. C-6611 § 1, 1989)

3.52.5218 Elections—Law governing.

A. Except as otherwise provided in this Division, the provisions of law regulating elections of the City, insofar as they may be applicable, shall govern all elections conducted pursuant to this Division. Except as provided in Subsection B of this Section, there shall be prepared and included in the ballot material provided to each voter an impartial analysis, and arguments and rebuttals, if any.

B. Analysis and arguments may be waived with the unanimous consent of all the qualified electors. (Ord. C-6611 § 1, 1989)

3.52.5219 Ballot materials.

A. If the election is to be conducted by mail or hand-delivered ballot, the election official conducting the election shall provide ballots and election materials pursuant to Subsection D of Section 3.52.5217 and Section 3.52.5218, together with all supplies and instructions necessary for the use and return of the ballot.

B. The identification envelope for return of ballots used in landowner elections shall contain the following:

1. The name of the landowner;

2. The address of the landowner;

3. A declaration, under penalty of perjury, stating that the voter is the owner of record or the authorized representative of the landowner entitled to vote and is the person whose name appears on the identification envelope;

4. The date of signing and place of execution of the declaration immediately described above;

5. The printed name and signature of the voter;

6. The address of the voter;

7. A notice that the envelope contains an official ballot and is to be opened only by the election official. (Ord. C-6611 § 1, 1989)

3.52.5220 Special tax levy—Effect of voter approval or disapproval.

A. After the canvass of returns of any election pursuant to Section 3.52.5217, the legislative body may levy any special tax as specified in the resolution of formation adopted pursuant to Section 3.52.5212 within the territory of the district, if two-thirds (2/3) of the votes cast upon the question of levying the tax are in favor of levying that tax.

B. After the canvass of returns of any election conducted pursuant to Section 3.52.5217, the legislative body shall take no further action with respect to levying the special tax within the community facilities district for six (6) months from the date of the election, if the question of levying that specified special tax fails to receive approval by two-thirds (2/3) of the votes cast upon the question. (Ord. C-6611 § 1, 1989)

3.52.5221 Application of California Streets and Highways Code with respect to special taxes—Filings.

A. Upon a determination by the legislative body that the requisite two-thirds (2/3) of votes cast in an election held pursuant to Section 3.52.5217 are in favor of levying the special tax, the City Clerk shall record or cause to be recorded the notice of special tax lien provided for in Section 3114.5 of the California Streets and Highways Code, whereupon the lien of the special tax shall attach as provided in Section 3115.5 of the California Streets and Highways Code. The notice of special tax lien shall be recorded in the office of the County Recorder in each County in which any portion of the district is located.

B. Division 4.5 (commencing with Section 3100) of the California Streets and Highways Code applies with respect to any special tax levied pursuant to this Division. This Division is a "principal act" as that term is defined in Section 3100 of the California Streets and Highways Code. (Ord. C-6611 § 1, 1989)

3.52.5222 Special tax—Levy and apportionment.

Upon approval of a special tax pursuant to Subsection A of Section 3.52.5220, the special tax may be levied only at the rate and may be apportioned only in the manner specified in the resolution of formation, except as provided in Subdivision 3 of this Division V, and except that the legislative body may levy the special tax at a rate lower than that specified in the resolution of formation. In addition, the special tax may be levied only so long as it is needed to pay the principal and interest on debt incurred in order to construct facilities under authority of this Division, or so long as it is needed to pay the costs and incidental expenses of services or of the construction of facilities authorized by this Division.

When the City Council determines that the special tax shall cease to be levied, the City Council shall direct the City Clerk to record a Notice of Cessation of Special Tax which shall state that the obligation to pay the special tax has ceased and that the lien imposed by the Notice of Special Tax Lien is extinguished. The Notice of Cessation of Special Tax shall identify the book and page of the Book of Maps of Assessment and Community Facilities Districts wherein the map of the boundaries of the district is recorded, and wherein the Notice of Special Tax Lien is recorded. (Ord. C-6611 § 1, 1989)

Subdivision 3. Changes in Authorized Facilities, Services and Special Taxes

3.52.531 Types of facilities and services provided.

Except as otherwise provided in this Subdivision, the City Council may, at any time, after conducting a public hearing, eliminate one (1) or more of the types of facilities and services specified in the resolution of formation to establish the existing district but may not finance any types of facilities and services that were not specified in the resolution of formation. (Ord. C-6611 § 1, 1989)

3.52.532 Resolution of consideration—Change in facilities, services and taxes.

The City Council shall not adopt a resolution of consideration to reduce the rate of any special tax or terminate the levy of any special tax if the proceeds of that tax are being utilized to retire any debt incurred pursuant to this Division unless the City Council determines that the reduction or termination of that tax would not interfere with the timely retirement of that debt. Otherwise, the City Council may adopt a resolution of consideration when:

A. If the City Council determines that the public convenience and necessity require any change in the types of authorized facilities or services which should be financed by an established community facilities district, that the rate or method of apportionment of a special tax should be changed, or that a new special tax should be proposed, the City Council may adopt a resolution of consideration to alter the types of facilities or services to be financed by the district, to levy a new special tax or special taxes, or, except as provided in Subsection B of this Section, to alter the rate or method of apportionment of the special tax; or

B. If a petition signed by fifty percent (50%) or more of the registered voters residing in the district, or by the owners of fifty percent (50%) or more of the territory within the district, is filed with the City Clerk requesting that proceedings be commenced to change the types of facilities or services financed by the district or that the rate or method of apportionment of an existing special tax be changed, or that a new special tax be levied, the City Council shall within ninety (90) days thereafter adopt a resolution of consideration in the form specified in Section 3.52.533 to make those changes within the community facilities district. Any petition filed by landowners shall be accompanied by the payment of such fee as the finance director determines is sufficient to compensate the City for all costs incurred in conducting proceedings pursuant to this Subdivision. (Ord. C-6611 § 1, 1989)

3.52.533 Resolution of consideration—Form.

The resolution of consideration shall contain the following:

A. State the name of the existing district and refer to the resolution of formation for further particulars;

B. Generally describe the territory included in the district or make reference to the recorded boundary map thereof;

C. Specify the changes in facilities and/or services which the district is authorized to finance;

D. Specify any new special taxes which would be levied to pay for new or existing facilities and services and any proposed alteration to the rate or method of apportionment of an existing special tax;

E. Fix a time and place for a hearing upon the resolution of consideration which shall not be less than ten (10) or more than sixty (60) days after the adoption of the resolution of consideration. (Ord. C-6611 § 1, 1989)

3.52.534 Notice of hearing.

The City Clerk shall give or cause to be given notice of the hearing in the same manner, containing the same information as applicable, and within the same time as provided for the giving of notice of a hearing on a resolution of intention to establish a community facilities district under Section 3.52.527 hereof. (Ord. C-6611 § 1, 1989)

3.52.535 Protests—Elimination from resolution—Continuation, hearing.

The provisions of Sections 3.52.529 through 3.52.5222 shall apply to the proceedings for changes. (Ord. C-6611 § 1, 1989)

3.52.536 Dissolution of districts.

The legislative body may, by ordinance, dissolve any existing district which it has created upon making all of the following determinations:

A. That the district is not obligated to pay any outstanding debt; and

B. That the district has no authorization to levy any special tax.

Upon dissolving a district, the City Council shall cause an addendum to be recorded to the Notice of Special Tax Lien pursuant to Section 3114.5 of the California Streets and Highways Code which shall state that the community facilities district and all associated liens, if any, have been dissolved. (Ord. C-6611 § 1, 1989)

Subdivision 4. Annexation of Territory

3.52.541 Authorization.

The City Council may annex territory to an existing community facilities district as provided in this Subdivision. The annexed territory need not be contiguous to territory included in the existing community facilities district. (Ord. C-6611 § 1, 1989)

3.52.542 Adoption of resolution of intention.

If the City Council determines that public convenience and necessity require that territory be added to an existing community facilities district, or if one (1) or more of the voters residing within certain territory or landowners request the City Council to include territory within the district, the City Council may adopt a resolution of intention to annex the territory. (Ord. C-6611 § 1, 1989)

3.52.543 Resolution of intention—Contents.

The resolution of intention to annex the territory shall do all of the following:

A. State the name of the existing community facilities district;

B. Generally describe the territory included in the existing district and the territory proposed to be annexed;

C. Specify the types of facilities and/or services provided pursuant to this Division in the existing district and the types of facilities and/or services to be provided in the territory proposed to be annexed; and include a plan for sharing facilities and providing services that will be provided in common with the existing district and the territory proposed to be annexed;

D. Specify any special taxes which would be levied within the territory proposed to be annexed to pay for facilities and/or services provided pursuant to this Division within that territory. A special tax proposed to pay for services to be supplied within the territory proposed to be annexed shall be equal to any special tax levied to pay for the same services in the existing district, except that a higher or lower tax may be levied within the territory proposed to be annexed to the extent that the actual cost of providing the services in that territory is higher or lower than the cost of providing those services in the existing district. A special tax proposed to pay for facilities financed with bonds secured by the existing community facilities district shall be the same as the tax levied in the existing district for that purpose, except that a higher special tax may be levied for that purpose within the territory proposed to be annexed to compensate for the interest and principal previously paid by the existing community facilities district, less any depreciation allocable to the facility as determined by the City Council in its sole discretion;

E. Specify any alteration in the special tax rate levied within the existing community facilities district as a result of the proposed annexation. The maximum tax rate in the existing community facilities district may not be increased as a result of proceedings pursuant to this Subdivision;

F. Fix a time and place for a hearing upon the resolution which shall not be less than ten (10) nor more than sixty (60) days after the adoption by the City Council of the resolution of intention to annex territory pursuant to Section 3.52.542. (Ord.C-6611 § 1, 1989)

3.52.544 Notice of hearing.

The City Clerk shall give notice of the hearing in the same manner and within the same time as provided for the giving of notice of a hearing on a resolution of intention to establish a community facilities district, as required by Section 3.52.527.

The notice shall do all of the following:

A. Contain the text of the resolution adopted pursuant to Section 3.52.543;

B. State the time and place for the hearing;

C. State that at the hearing the testimony of all interested persons for or against the annexation of territory to the community facilities district or the levying of special taxes within the territory proposed to be annexed will be heard. (Ord. C-6611 § 1, 1989)

3.52.545 Protests.

At the hearing, protests against the proposals described in the resolution of intention may be made orally by any interested person. Any protests pertaining to the regularity or sufficiency of the proceedings shall be in writing and shall clearly set forth the irregularities or defects to which objection is made. All written protests shall be filed with the City Clerk prior to the time fixed for the hearing. The City Council may waive any irregularities in the form or content of any written protest and at the hearing may correct minor defects in the proceedings. Written protests may be withdrawn in writing at any time before the conclusion of the hearing. (Ord. C-6611 § 1, 1989)

3.52.546 Abandonment of proposal—Required number of written protests.

If fifty percent (50%) or more of the registered voters, or six (6) registered voters, whichever is more, residing within the existing community facilities district, or if fifty percent (50%) or more of the registered voters or six (6) registered voters, whichever is more, residing within the territory proposed for annexation, or if the owners of one-half (1/2) or more of the area of land in the territory proposed to be annexed, file written protests against the proposed addition of territory to the existing community facilities district, and protests are not withdrawn so as to reduce the protests to less than a majority, no further proceedings shall be undertaken for a period of six (6) months from the date of decision of the City Council on the issues discussed at the hearing. (Ord. C-6611 § 1, 1989)

3.52.547 Continuance and duration of hearing—Abandonment of proceedings—Submission of special tax question to electors.

The hearing may be continued from time to time, but shall be completed within six (6) months. At the conclusion of the hearing, the legislative body may abandon the proceedings or may, after passing upon all protests, submit the question of levying special tax within the area proposed to be annexed to the existing community facilities district to the qualified electors of the area proposed to be annexed, in the manner specified for elections in Subdivision 2 of this Division V. (Ord. C-6611 § 1, 1989)

3.52.548 Addition of territory with full legal effect—Special tax levy.

After the canvass of returns of any election conducted in accordance with Section 3.52.547, the City Council shall determine that the area proposed to be annexed is added to and part of the existing community facilities district with full legal effect, and the City Council may levy any special tax within the annexed territory, as specified in the resolution of intention to annex adopted pursuant to Section 3.52.542, if two-thirds (2/3) of the votes cast on the proposition are in favor of levying the special tax. (Ord. C-6611 § 1, 1989)

3.52.549 Failure to receive approval of two-thirds of voters—Prohibition of further action.

After the canvass of returns of any election conducted in accordance with Section 3.52.547, the City Council shall take no further action on annexing the territory proposed to be annexed to

the community facilities district for a period of six (6) months from the date of the election if less than two-thirds (⅔) of the votes cast on the proposition are in favor of levying the special tax. (Ord. C-6611 § 1, 1989)

Subdivision 5. Procedures for Levying

3.52.551 Ordinance—Tax rate and apportionment—Exemption of governmental properties and entities from special tax—Use of tax proceeds—Tax collection, penalties, etc.

After a community facilities district has been created and authorized to levy specified special taxes pursuant to Subdivisions 2, 3 or 4 of this Division V, the City Council may, by ordinance, levy the special taxes at the rate and apportion them in the manner specified in the resolution of formation or consideration, as applicable, adopted pursuant to Subdivisions 2, 3 or 4 of this Division V. Any such ordinance, after adoption, shall remain in effect until repealed by a later ordinance. The City Council may, by resolution, clarify any aspect of the levy of the special tax as provided by the ordinance.

Properties or entities of the State, federal, or other local governments shall, except as otherwise provided in Sections 3.52.5113 or 3.52.5114, be exempt from the special tax. No other properties or entities are exempt from the special tax unless the properties or entities are expressly exempted in the resolution of formation to establish a district adopted pursuant to Section 3.52.5212 or in a resolution of consideration to levy a new special tax or special taxes or to alter the rate or method of apportionment of an existing special tax as provided in Section 3.52.533.

The proceeds of any special tax may only be used to pay, in whole or part, the cost of providing facilities, services and incidental expenses of the City or the district pursuant to this Division. The special tax shall be collected in the same manner as ordinary ad valorem property taxes are collected and shall be subject to the same penalties and the same procedures, sale, and lien priority in case of delinquency as is provided for ad valorem taxes, unless another procedure has been authorized in the resolution of formation establishing the district and adopted by the City Council. The tax collector may collect the special tax at intervals as specified in the resolution of formation, including intervals different from the intervals at which the ordinary ad valorem property taxes are collected. The Tax Collector may deduct the reasonable administrative costs incurred in collecting the special tax.

All special taxes levied by a community facilities district shall be secured by the lien imposed pursuant to Section 3115.5 of the California Streets and Highways Code. This lien shall be a continuing lien and shall secure each levy of special taxes. The lien of the special tax shall continue in force and effect until the special tax obligation is prepaid, permanently satisfied, and canceled, or until the special tax ceases to be levied by the City Council in the manner provided in Section 3.52.5222. (Ord. C-6611 § 1, 1989)

3.52.552 Designation of office for special tax computation.

The City Council shall designate an office, department, or bureau of the City which shall be responsible for annually preparing the current roll of special tax levy obligations by assessor's parcel number on nonexempt property within the district and which will be responsible for estimating future special tax levies. The designated office, department, or bureau shall establish procedures to promptly respond to inquiries concerning current and future estimated tax liability. Neither the designated office, department, or bureau, nor the City Council, shall be liable if any estimate of future tax liability is inaccurate. (Ord. C-6611 § 1, 1989)

3.52.553 Actions or proceedings to attach, review, set aside, void, or annual levy of special tax or increase in special tax—Time for commencement—Time for perfection of appeal from final judgment.

Any action or proceeding to attack, review, set aside, void or annul the levy of a special tax or an

increase in a special tax pursuant to this Division, bonded indebtedness authorized, or to be incurred pursuant to this Division, shall be commenced within thirty (30) days after the special tax or the bonded indebtedness, as applicable, is approved by the voters. Any appeal from a final judgment in that action or proceeding shall be perfected within thirty (30) days after the entry of judgment. (Ord. C-6611 § 1, 1989)

3.52.554 Disclosure of the special tax.

A. If a lot, parcel, or unit of a subdivision is subject to a special tax levied pursuant to this Division for which a public report is not required pursuant to Article 2 (commencing with Section 11010) of Chapter 1 of Part 2 of Division 4 of the California Business and Professions Code, the subdivider, his or her agent, or representative, shall not sell, or lease for a term exceeding five (5) years, the lot, parcel, or unit, or cause it to be sold or leased for a term exceeding five (5) years, until the prospective purchaser or lessee of the lot, parcel, or unit has been furnished with and has signed a written notice as provided in this Section. The notice shall contain the heading "NOTICE OF SPECIAL TAX" in type no smaller than 8-point type, and shall state the following in clear and simple language:

1. That the property being purchased is or will be subject to a special tax;

2. The maximum annual amount of the special tax, and the number of years for which it will be levied;

3. The types of facilities or services to be paid for with the proceeds of the special tax.

B. "Subdivision," as used in Subsection A of this Section, means improved or unimproved land that is divided or proposed to be divided for the purpose of sale, lease, or financing, whether immediate or future, into two (2) or more lots, parcels, or units for residential use and includes a condominium project, as defined by Section 1350, a community apartment project, a stock cooperative, and a limited-equity housing cooperative, as defined in Sections 11004, 11003.2, and 11003.4, respectively, of the California Business and Professions Code.

C. If any disclosure required to be made by this Section is delivered after the execution of an agreement to purchase, the buyer shall have three (3) days after delivery in person or five (5) days after delivery by deposit in the mail, to terminate his or her agreement by delivery of written notice of that termination to the owner, subdivider, or agent. Any disclosure delivered after the execution of an agreement to purchase shall contain a statement describing the buyer's right, method and time to rescind as prescribed by this Subsection.

D. The failure of the buyer or lessee to sign the notice shall not invalidate any grant, conveyance, lease, or encumbrance.

E. Any person or entity who willfully violates the provisions of this Section shall be liable to the purchaser of a lot or unit which is subject to the provisions of this Section for actual damages, and in addition thereto, shall be guilty of a public offense punishable by a fine in an amount not to exceed five hundred dollars ($500.00). In an action to enforce such liability or fine, the prevailing party shall be awarded reasonable Attorney's fees. (Ord. C-6611 § 1, 1989)

3.52.555 Manner of fixing and collecting charges.

For any community facilities district or zone thereof, the City Council may fix and collect charges in the same manner as for miscellaneous extended services in County service areas. (Ord. C-6611 § 1, 1989)

3.52.556 Use of charges for authorized facilities and services.

Any charges collected pursuant to this Division may only be used for facilities and services authorized by this Division. (Ord. C-6611 § 1, 1989)

3.52.557 Notice of cancellation of special tax.

In the event that the special tax is permanently satisfied as to a particular parcel of land, the City Clerk shall prepare and record in the office of the County Recorder of the County in which the par-

cel of land is located, and the County Recorder shall accept for recordation, a Notice of Cancellation of Special Tax Authorization as to that parcel. The Notice of Cancellation of Special Tax Authorization shall identify with particularity the special tax being cancelled, shall contain the legal description and assessor's parcel number of the particular parcel of land subject to the tax, and shall contain the name of the owner of record of the parcel. The City Clerk shall mail the original Notice of Cancellation of Special Tax Authorization to the owner of the property after recording the document. The City Clerk may specify a charge for the preparation and recordation of this notice. (Ord. C-6611 § 1, 1989)

Subdivision 6. Bonds

3.52.561 Resolution to incur bonded indebtedness.

Whenever the City Council deems it necessary for an existing or proposed community facilities district to incur bonded indebtedness, it shall, by resolution, set forth all of the following:

A. A declaration of the necessity for the indebtedness;

B. The purpose for which the proposed debt is to be incurred;

C. The amount of the proposed debt;

D. The time and place for a hearing by the City Council on the proposed debt issue. (Ord. C-6611 § 1, 1989)

3.52.562 Inclusion of certain costs and estimated costs in proposed bonded indebtedness.

The amount of the proposed bonded indebtedness may include all costs and estimated costs incidental to, or connected with, the accomplishment of the purpose for which the proposed debt is to be incurred, including, but not limited to, the estimated costs of construction or acquisition of buildings, or both; acquisition of land, rights-of-way, water, sewer or other capacity or connection fees; lease payments for school facilities that are relocated, satisfaction of contractual obligations issued pursuant to this Division, architectural engineering, inspection, legal, fiscal, and financial consultant fees; environmental review and monitoring costs; bonded and other reserve funds; discount fees; interest on any bonds of the district due and payable prior to the expiration of one (1) year from the date of completion of all of the facilities, not to exceed five (5) years; election costs; administrative expenses of the City in administering the district or the levy and collection of the special taxes; and all costs of issuance of the bonds, including, but not limited to, fees for bond counsel, costs of obtaining credit ratings, bond insurance premiums, fees for letters of credit, and other credit enhancements costs, and printing costs. (Ord. C-6611 § 1, 1989)

3.52.563 Notice of hearing on resolution.

The City Clerk shall publish a notice of the hearing in a newspaper of general circulation circulated within the district. The notice shall state:

A. The time and place of the hearing;

B. At that time and place any person interested, including all persons owning property in the district, will be heard upon the proposed debt issue. (Ord. C-6611 § 1, 1989)

3.52.564 Hearing.

At the time and place fixed for the hearing on the resolution declaring the necessity for incurring the bonded indebtedness or at any time and place to which the hearing is adjourned, the City Council shall proceed with the hearing.

At the hearing any person interested, including persons owning property within the district, may appear and present any matters material to the questions set forth in the resolution declaring the necessity for incurring the bonded indebtedness. (Ord. C-6611 § 1, 1989)

3.52.565 Improvement area—Resolution designating—Application of proceedings.

For purpose of financing of, or contributing to the financing of, specified facilities, the City Council may by resolution designate a portion or portions of the district as one (1) or more improve-

ment areas. An area shall be known as "Improvement Area No. _____" of "Community Facilities District _____ of the City of Long Beach." After the designation of an improvement area, all proceedings for purposes of a bond election and for the purpose of levying special taxes for payment of the bonds shall apply only to the improvement area for those specified facilities. (Ord. C-6611 § 1, 1989)

3.52.566 Resolution—Bonded indebtedness.

After the City Council has held the hearing described in Subsection D of Section 3.52.561, if it deems it necessary to incur the bonded indebtedness, it shall by resolution state all of the following:

A. That it deems it necessary to incur the bonded indebtedness;

B. The purpose for which the bonded indebtedness will be incurred;

C. Either of the following in accordance with its previous determination;

1. That the whole of the district will pay for the bonded indebtedness;

2. That a portion of the district will pay for the bonded indebtedness, which portion shall be described in the resolution of the City Council made pursuant to Section 3.52.565;

D. The principal amount of debt to be incurred;

E. The maximum term of the bonds to be issued, which term shall not exceed fifty (50) years;

F. The maximum annual rate of interest to be paid, payable annually or semiannually, or in part annually and in part semiannually, or in such other manner as shall be provided by the City Council;

G. That the proposition will be submitted to the voters;

H. The date of the special community facilities district election (which may be consolidated with a general or special district election, including an election to levy a special tax) at which time the proposition shall be submitted to the voters;

I. If the election is not conducted by mail or hand-delivered ballot, the hours between which the polls shall be open;

J. If the election is conducted by mail or hand-delivered ballot, the hour when the ballots are required to be received in the office of the election officer conducting the election, and that if all qualified electors have voted, the election shall be closed. (Ord. C-6611 § 1, 1989)

3.52.567 Resolution to incur bonded indebtedness—Notice of election—Publication.

The resolution provided for in Section 3.52.566 shall constitute the notice of such special bond election and such resolution shall be published in a newspaper of general circulation circulating within the district. (Ord. C-6611 § 1, 1989)

3.52.568 Elections pursuant to this Article—Laws and rules applicable.

Except as otherwise provided in this Article, the provisions of the California Elections Code relating to the qualifications of electors, the manner of voting, the duties of election officers, the canvassing of returns, and all other particulars in respect to the management of elections insofar as they may be applicable shall govern all elections pursuant to this Subdivision, except that voting shall be conducted in the manner specified in Section 3.52.5217 of this Division.

Propositions relating to the levy of a special tax, incurring of bonded indebtedness, or to establish or change an appropriations limit, or any combination thereof, under this Division, may be combined into one (1) ballot proposition as determined by the City Council.

If the area designated in the resolution adopted pursuant to Section 3.52.566 does not include the entire community facilities district, a separate ballot shall be prepared for the vote upon the proposition to authorize bonds and to levy a special tax for payment of such bonds and only the voters entitled thereto shall be given such ballots. (Ord. C-6611 § 1, 1989)

3.52.569 Resolution relating to form, execution and issuance of bonds.

If more than two-thirds (2/3) of the votes cast at the election are in favor of incurring the indebt-

edness, the legislative body may, by resolution, at the time or times it deems proper, provide for the following:

A. The form of the bonds;

B. The execution of the bonds;

C. The issuance of any part of the bonds;

D. The appointment of one (1) or more banks or trust companies within or without the State having the necessary trust powers as trustee, fiscal agent, paying agent, or bond registrar;

E. The execution of a fiscal agent agreement, trust agreement or indenture securing the bonds;

F. The pledge or assignment of any revenues of the community facilities district to the repayment of the bonds;

G. The investment of any bond proceeds and other revenues, including special tax revenues, by the trustee or fiscal agent in any securities or obligations described in the resolution, fiscal agent agreement, indenture, trust agreement, or other instrument providing for the issuance of the bonds;

H. The date or dates to be borne by the bonds and the time or times of maturity of the bonds and the place or places and time or times that the bonds shall be payable;

I. The interest, fixed or variable, to be borne by the bonds;

J. The denominations, form, and registration privileges of the bonds;

K. Any other terms and conditions determined to be necessary by the City Council. (Ord. C-6611 § 1, 1989)

3.52.5610 Action to foreclosure liens—Cumulative remedy—Resolution to diligently pursue foreclosure action.

A. As a cumulative remedy, if bonds are outstanding, the City Council may, not later than four (4) years after the due date of the last installment of principal thereof, order that any delinquent special taxes levied in whole or in part for payment of the bonds, together with any penalties, interest, and costs, be collected by any action brought in the superior court to foreclose the lien of special tax.

B. The City Council may covenant for the benefit of bondowners to commence and diligently pursue to completion any foreclosure action regarding delinquent installments of any amount levied as a special tax for the payment of interest or principal of any bonds that are issued. (Ord. C-6611 § 1, 1989)

3.52.5611 Credits for delinquent taxes.

A. When any foreclosure actions are ordered, the Tax Collector shall be credited upon the current tax roll with the amount charged on account of the delinquent special taxes to be sued on, including applicable penalties, interest, and costs, and the tax collector shall be relieved of further duty in regard thereto. Any amounts not the subject of a foreclosure action shall remain collectible by the Tax Collector.

B. The Tax Collector may charge the actual cost incurred in removing these sums from the tax roll. This charge shall be added to the costs to be recovered in the foreclosure action. (Ord. C-6611 § 1, 1989)

3.52.5612 Delinquent taxes, procedures.

At any time after the Tax Collector has been relieved of his or her duty to collect sums under Section 3.52.5611 and before judgment in a foreclosure action, the City Council shall dismiss the action upon payment of all of the following:

A. The amount of any delinquent special taxes together with any penalties, interest, and costs accrued thereon to date of complete payment hereunder;

B. Costs of suit, including, but not limited to, litigation guarantees provided by title companies with respect to all claims of ownership or interest in the subject property;

C. Attorney's fees authorized by the local agency; and

D. The Tax Collector's costs authorized by Subsection B of Section 3.52.5611. (Ord. C-6611 § 1, 1989)

3.52.5613 Foreclosures.

The foreclosure action shall be brought in the name of the City, and may be brought within the

time specified in Section 3.52.5610. The complaint may be brief and need only include the following allegations:

A. That on a stated date, a certain sum of special taxes, levied against the subject property, describing it, pursuant to this Division, became delinquent;

B. On that date, bonds issued pursuant to this Division, payable in whole or in part by the subject special taxes, were outstanding if applicable;

C. That the City Council has ordered the foreclosure. (Ord. C-6611 § 1, 1989)

3.52.5614 Judgments.

Any judgment shall decree the amount of the continuing lien against each parcel to be foreclosed, and shall order the parcel to be sold on execution as in other cases of the sale of the real property by process of the court. The judgment amount shall include reasonable Attorney's fees to be fixed by the court, together with interest, penalties, and other authorized charges and costs, all calculated up to date of judgment. The foreclosure action shall be governed and regulated by the provisions of this Division, and also where not in conflict with this Division, by other provisions of law generally applicable to foreclosure actions.

Property sold hereunder may not be sold for less than the amount of the judgment plus post-judgment interest and authorized costs with the consent of the owners of fifty-one percent (51%) by principal amount of the outstanding bonds. (Ord. C-6611 § 1, 1989)

3.52.5615 Errors.

No special tax installment, interest or penalties thereon, or deed shall be held invalid for any error in computation if the error is found to be comparatively negligible, or is found to be in favor of the owner of the real property affected thereby. (Ord. C-6611 § 1, 1989)

3.52.5616 Signatures on bonds or coupons—Place bonds are payable.

The bonds shall be signed by the Mayor and countersigned by the City Clerk. All signatures on the bonds may be printed, lithographed, or engraved. If any officer whose signature appears on the bonds ceases to be that officer before the delivery of the bonds, his or her signature is as effective as if he or she had remained in office. All bonds shall be payable at the office of the City Treasurer or at the office of any agent designated by the City. (Ord. C-6611 § 1, 1989)

3.52.5617 Special tax or charge for outstanding bonded debt.

When the City Council fixes and levies special taxes and charges for the community facilities district it shall also fix and levy that amount of special taxes and charges within the community facilities district which is required for the payment of the principal of and interest on any outstanding bonded debt of the community facilities district, including any necessary replenishment or expenditure of bond reserve funds or accumulation of funds for future bonded payments. The special tax or charge shall be levied and collected by the same officers and at the same time and in the same manner that all other special taxes and charges are levied and collected for the community facilities district or in any other manner specified by the City Council. The special taxes and charges shall not exceed the authority granted by Subdivisions 2, 3 or 5 hereof. All of the collections for payment of principal and interest on bonds shall be paid into the community facilities district bond or similar fund and reserve or other fund for the particular community facilities district and shall be used solely for the payment of the principal of and interest on the outstanding bonds of the community facilities district. (Ord. C-6611 § 1, 1989)

3.52.5618 Action to determine validity of bonds or special tax levy.

Any action to determine the validity of bonds issued pursuant to this Division or the validity of any special taxes levied pursuant to this Division may be brought pursuant to Chapter 9 (commencing with Section 860 of Title 10 of Part 2 of the California Code of Civil Procedure) but shall,

notwithstanding the time limits specified in Section 860 of the California Code of Civil Procedure, be commenced within thirty (30) days after the voters approve the issuance of the bonds or the special tax if the action is brought by an interested person pursuant to Section 863 of the California Code of Civil Procedure. Any appeal from a judgment in that action or proceeding shall be commenced within thirty (30) days after entry of judgment. (Ord. C-6611 § 1, 1989)

3.52.5619 Sale of bonds.

The City may sell the bonds so authorized at public or private sale, at the times and in the manner the City Council deems appropriate. However, all bonds sold at public sale shall be sold on sealed proposals after advertising for bids by publication of notice of sale, not less than five (5) days prior to the date of sale, in a newspaper of general circulation circulating in the City. If no bids are received or the bids received are not satisfactory as to price or responsibility of the bidders, the City Council or its designee may reject all bids received, if any, and either readvertise or sell the bonds at private sale. (Ord. C-6611 § 1, 1989)

3.52.5620 Force, value and use of bonds—Exemption from State taxation.

Any bonds issued by a district organized under the provisions of this Division are hereby given the same force, value and use as bonds issued by any municipality and shall be exempt from all taxation within the State. (Ord. C-6611 § 1, 1989)

3.52.5621 Refunding bonds—Resolution.

The City Council may, by resolution, authorize the issuance of new bonds to refund any or all of the district bonds outstanding or improvement area bonds outstanding that have been issued pursuant to this Subdivision.

The City Council may issue refunding bonds without repeating any of the procedures required for the approval of the original bond issue, if the City Council determines that the total net interest cost to the maturity on the refunding bonds plus the principal amount of the refunding bonds does not exceed the total net interest cost to maturity on the bonds to be refunded plus the principal amount of the bonds to be refunded. Subject to such limitations, the principal amount of the refunding bonds may be more than, less than, or the same as the principal amount of the bonds to be refunded.

The total authorized amount of the bonded indebtedness of a district or an improvement area therein, as approved by the qualified voters thereof, shall not be reduced by the principal amount of any refunding bonds issued to refund any or all outstanding bonds of the district or improvement area. (Ord. C-6611 § 1, 1989)

3.52.5622 Refunding bonds—Resolution for issuance.

If the City Council determines to issue refunding bonds pursuant to this Division it shall adopt a resolution providing for their issuance. The resolution shall:

A. Describe the bonds being refunded and state the date on which it is anticipated that the refunding will occur;

B. Fix the date of the refunding bonds;

C. Designate the denomination or denominations of the refunding bonds;

D. Fix the minimum rate or rates of interest to be paid on the refunding bonds;

E. Fix the maturity dates of the refunding bonds, which may exceed the latest maturity date of the bonds being refunded, provided that the latest maturity date of the refunding bond shall not be in excess of fifty (50) years from the date of issuance of the bonds to be refunded;

F. Designate the place or places of payment of principal and interest on the refunding bonds and on the bonds to be refunded;

G. Describe the form of the refunding bonds. (Ord. C-6611 § 1, 1989)

3.52.5623 Sale of refunding bonds.

The City Council may sell the refunding bonds at public or private sale. The proceeds of any sale of refunding bonds for cash shall be applied only

as permitted by this Division. (Ord. C-6611 § 1, 1989)

3.52.5624 Amount of proceeds and investments in funding fund.

The proceeds of the refunding bonds and the earnings thereon shall be in an amount sufficient to meet either the requirements of Subsection 3.52.5624.A or 3.52.5624.B of this Section at the time of issuance of the refunding bonds, as certified by a certified public accountant licensed to practice in this State.

A. The proceeds (including any amounts in any reserve fund established for the bonds to be refunded not needed for purposes of the refunding bonds) and investments, together with any interest or other gain to be derived from any such investment, shall be in an amount sufficient to pay the principal, interest, and redemption premiums, if any, on the refunded bonds as they become due or at designated dates prior to maturity and the costs of issuance of the refunding bonds.

B. The proceeds (including any amounts in any reserve fund established for the bonds to be refunded not needed for purposes of the refunding bonds) and investments, together with any interest or other gain to be derived from any such investment, shall be in an amount sufficient to pay the principal, interest, and redemption premiums, if any, on the refunding bonds prior to the maturity of the bonds to be refunded or prior to a designated date or dates before the maturity of the bonds to be refunded, the principal and any redemption premiums due on the refunded bonds at maturity or upon that designated date or dates, and the costs of issuance of the refunding bonds. (Ord. C-6611 § 1, 1989)

3.52.5625 Refunding bonds—Use of savings—Reduction of tax levy.

Any savings achieved through the issuance of refunding bonds shall be used to reduce the special taxes which were levied to retire the bonds being refunded. At the time the City Council makes a determination to issue the refunding bonds, it shall determine and cause to be made any reduction in the annual tax in the district, which reduction shall be made on a pro rata basis. (Ord. C-6611 § 1, 1989)

3.52.5626 Callable bonds.

Any bonds issued may be made callable in the document providing their terms. When bonds are made callable a statement to that effect shall be set forth on the face of the bonds. Callable bonds may be redeemed on any interest payment date prior to their fixed maturity in the amounts, manner and prices prescribed in the document providing their terms. (Ord. C-6611 § 1, 1989)

DIVISION VI. STRUCTURAL SEISMIC RESISTANCE AND STRUCTURAL REPAIR ASSESSMENT DISTRICT FORMATION

Subdivision 1. Definitions and General Provisions

3.52.570 Description by reference to plan or map filed and open to public inspection.

Any resolution, notice, report, diagram or assessment which is required to contain a description of the improvements, the boundaries of the assessment district or the parcels therein, or the lines and dimensions of any parcel of lands may, for a full and detailed description thereof, refer to any plan or map which is on file with the City Engineer, City Clerk, the County Auditor or the assessor of the County and which is open to public inspection. The plan or map so referred to shall govern for all details of the description. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.571 Construction governed by definitions.

Unless the context otherwise requires, the definitions contained herein shall govern the construction of this Division. For purposes of this Division, words importing the singular number shall include the plural number and vice versa, and words importing persons shall include firms, asso-

ciations, corporations, partnerships, districts, agencies and bodies, unless the context clearly requires otherwise.

"Assessed" and "assessment" as used in Subdivision 3 mean assessments made pursuant to Subsection 3.52.582.E, as corrected and modified by the City Council. "Assessed" and "assessments" do not include assessments to pay administrative costs made pursuant to Subsection 3.52.582.F.

"Assessment district" means the district of land or certain specified parcels (which may be contiguous or noncontiguous parcels) within the City to be benefited by the improvements and to be specially assessed to pay the costs and expenses of the improvements and the damages caused by the improvements.

"Assessment Engineer" means the City Engineer or such other officer of the City or competent person employed or contracted by the City responsible for preparing the report required by Section 3.52.581, who is a registered professional engineer certified by the State of California.

"Auditor" means any person at the City who is charged with the duty of extending taxes upon the assessment rolls and lists.

"Bond", and any of its variants, means bonds, notes, commercial paper or other evidences of indebtedness, or lease, installment purchase or other agreements or certificates of participation therein.

"City" means the City of Long Beach, California.

"City Clerk" means the person who is or acts as Clerk of the City Council and/or the Assessment Engineer when such individual is deputized as City Clerk.

"City Council" means the Council of the City.

"County" means the County of Los Angeles, California.

"Improvement", and any of its variants, includes all work and improvements, whether acquired, installed or constructed, authorized or undertaken by the City or by any owner which are necessary or incidental to comply with the provisions of Chapter 18.68, any amendments thereto, or any other provision of law relating to the health, safety and welfare of the citizens of the City, and which are necessary for or incidental to a public purpose.

"Incidental expenses" shall include, but not be limited to, the incidental expenses specified in Section 5024 of the Streets and Highways Code.

"Owner" means the person owning the fee, or the person in whose name the legal title to the property appears, by deed duly recorded in the County Recorder's office of the County, or the person in possession of the property or buildings, exercising acts of ownership over the same for himself, or as the executor, administrator, guardian or conservator of the owner. If the property is leased, the possession of the tenant or lessee holding and occupying such property shall be deemed to be in the possession of the owner.

"Resolution of Intention" means the resolution of the City required by Section 3.52.579.

"State" means the State of California.

"Tax Collector" means the person who is charged with the duty of collecting taxes, advertising delinquent lists of unpaid taxes, selling lands thereunder and executing certificates of sale and deeds thereon.

"Treasurer" means the City Treasurer or any designated agent. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.572 Selection of newspaper.

Whenever in Subdivision 2 and Subdivision 3 a notice, resolution, order or other matter is required to be published and the manner of such publication is not specified, it shall be published in a daily, semiweekly or weekly newspaper published and circulated in the City and which is selected by the City Council for that purpose, or by the City Clerk or other officer issuing the notice or responsible for the publication where the City Council has not selected any newspaper for that purpose. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.573 Time of publication.

Whenever in Subdivision 2 and Subdivision 3 a notice, resolution, order or other matter is re-

quired to be published and the time for such publication is not specified, it shall be published in the newspaper once. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.574 Time and place of posting.

Whenever in Subdivision 2 and Subdivision 3 a notice, resolution, order or other matter is required to be posted and the time or method for such posting is not specified, the City Clerk shall conspicuously post the notice, resolution, order or other matter on or near the door of the City Council's regular meeting place for not less than seventy-two (72) hours. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.575 Publication or posting of notice, resolution, order or other matter—Clerk—Validation of proceedings.

Whenever any notice, resolution, order, or other matter is required to be published or posted, and the duty of posting, publishing or procuring the same is not specifically enjoined upon any officer or person, the City Clerk shall post or procure the publication or posting thereof, as the case may be.

No step in any proceeding shall be invalidated or affected by any error or mistake or departure from the provisions of this Division as to the officer or person posting or publishing, or procuring the publication or posting, of any notice, resolution, order or other matter when the same is actually published or posted for the time required. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.576 Failure to mail or receive notice—Validation of proceedings.

The failure of the City Clerk or Assessment Engineer to mail any notice or the failure of any person to receive the same shall not affect in any way whatsoever the validity of any proceedings taken under this Division nor prevent the City Council from proceeding with any hearing so noticed. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.577 Notice—Publication of notice, order—Necessity—Validity.

No notice, nor any publication of any notice, order, resolution or other matter, other than that expressly provided in Subdivision 2 and Subdivision 3 of this Division, shall be necessary to give validity to any of the proceedings provided in this Division. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.578 Compliance with Article XIII D of California Constitution.

Notwithstanding any provision of this Division, in the event of any conflict between the requirements of this Division and those of Article XIII D of the California Constitution, the provisions of said Article XIII D shall prevail. (Ord. C-7480 § 1, 1997)

Subdivision 2. Procedures for Forming Assessment Districts and Levying Assessments

3.52.578.1 Power to construct, acquire, install improvements—Acquisition of land and easements.

Whenever the public interest or convenience requires, the City Council may acquire, construct or install, or may make funds available to enable the owners of parcels of land within the assessment district to acquire, construct or install, any or all of the improvements, and the City may acquire by gift, purchase or eminent domain proceedings, land, rights-of-way, leases and easements necessary for any such works and improvements. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.579 Resolution of Intention.

Before authorizing the City or any Owner to proceed with any Improvement in accordance with the provisions of this Subdivision and for which an assessment will be levied on parcels of land within the proposed Assessment District, the City Council shall adopt a resolution declaring its intention to do so. The Resolution of Intention shall (i) briefly describe the nature of the proposed Improvements, (ii) specify the exterior boundaries

of the Assessment District and the parcels of land which will have a special benefit conferred upon them and upon which an assessment will be imposed, (iii) declare the intention of the City Council to issue Bonds payable from the assessments, if any Bonds are to be issued, as contemplated by Subdivision 3, (iv) declare the intention of the City Council to levy an assessment for any such Improvements, (v) declare the intention of the City Council to levy an assessment or a fee to pay administrative costs of the City incurred as a result of the assessments or any Bonds if it intends to levy such an assessment or fee, (vi) describe the methods of apportionment over time of any assessment proposed under this Subdivision which shall be consistent with the requirements of Article XIII D of the California Constitution, (vii) if the Improvements are to be constructed, acquired or installed by the affected Owners or their designated appointees or contractors, the procedure for the Owners to apply for funds, including the contents of any reports, certificates or estimates which must be submitted to the Assessment Engineer for approval as a prerequisite to receiving such funds, (viii) provide for the disposal of any surplus remaining in any accounts of an improvement fund after completion of the Improvements, (ix) state the intention of the City, if applicable, to exclude from the Assessment District all properties belonging to Owners who have provided notice of their intent not to be part of the Assessment District in accordance with Section 3.52.595, (x) state, if applicable, the determination of the City Council to provide a penalty on delinquent installments of assessments in accordance with Section 3.52.613, (xi) name an Assessment Engineer for the Assessment District, (xii) state the procedures for Owners to protest against the proposed Improvements, Assessment District and assessments, and (xiii) separate the general benefits from the specific benefits imposed on properties in the Assessment District. The descriptions need not be detailed and shall be sufficient if they enable the Assessment Engineer to generally identify the nature, location and extent of the Improvements and the location of, or the parcels included in, the Assessment District. The Resolution of Intention may also contain a brief statement of the intention of the City Council to enter into an agreement with any other public agency or public utility for the performance of any work or service by such public agency or public utility in connection with the Improvements. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.580 Payment of cost and expenses out of General Fund authorized.

In the Resolution of Intention, the City Council may order that a specified portion or percentage of the cost and expenses of the Improvements shall be paid out of the General Fund of the City or from any other fund as the City Council may designate. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.581 Call for report.

In the Resolution of Intention, the City Council shall refer the proposed Improvements to the Assessment Engineer named in the Resolution of Intention and direct such Assessment Engineer to make and file with the City Clerk a report in writing. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.582 Contents of report.

The report of the Assessment Engineer to whom the Improvements are referred by the City Council shall contain the following:

A. A general description of the proposed Improvements including the general nature and extent of the Improvements.

B. A general description of any Improvements already acquired, constructed or installed and any other works, appliances or property necessary or convenient for the operation of the Improvements, if such works, appliances or property are to be acquired, constructed or installed as part of the Improvements.

C. An estimate of the proposed cost of the Improvements and of the proposed cost of the Incidental Expenses to be incurred in connection with the Improvements including, but not limited

to, expenses relating to the financing of the Improvements, the establishment of a reserve fund for the Bonds and the registration of Bonds.

D. A diagram showing, as they existed at the time of the passage of the Resolution of Intention, all of the following:

1. The exterior boundaries of, or the parcels included in, the Assessment District.

2. The boundaries of, or the parcels included in, any zones within the Assessment District.

3. The lines and dimensions of each parcel of land within the Assessment District. Each parcel, including any condominium interest, as defined in Section 783 of the Civil Code of the State of California, shall be given a separate number upon the diagram. The diagram may refer to the County Assessor's maps for a detailed description of the lines and dimensions of any parcels, in which case those maps shall govern for all details concerning the lines and dimensions of the parcels.

E. A proposed assessment of the total amount of the costs and expenses of the proposed Improvements upon the several parcels of land in the Assessment District. Such proposed assessment shall include the formula pursuant to which the amount of the assessment was determined. The methods of apportionment over time of any assessment shall also be stated. When any portion or percentage of the cost and expenses of the Improvements is ordered to be paid out of the General Fund or other fund of the City pursuant to Section 3.52.580, the amount of that portion or percentage shall first be deducted from the total estimated cost and expenses of the Improvements, and the assessment upon property proposed in the report shall include only the remainder of the estimated cost and expenses. The assessment shall refer to the parcels by their respective numbers as assigned pursuant to Subsection 3.52.582.D.

F. A proposed maximum annual assessment upon the several parcels within the Assessment District to pay costs incurred by the City and not otherwise reimbursed which result from the administration and collection of assessments or from the administration or registration of any associated Bonds and reserve or other related funds. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.583 Allowance for interest.

If Bonds are to be issued pursuant to Subdivision 3 hereof, the costs and expenses of the proposed Improvements may include an allowance for interest not exceeding two (2) years' estimated interest on the Bonds from the date thereof. The amount of the allowance for interest shall be paid into the redemption fund for the Bonds upon sale and delivery of the Bonds. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.584 Loans to special funds.

To expedite the conduct of proceedings and the construction, acquisition or installation of any Improvements, the City Council may at any time transfer into a special fund designated by the name of the improvement proceeding, out of any available funds of the City, such sums as it deems necessary. The sums so transferred are a loan to the special fund and may, or at the discretion of the City Council shall, be repaid out of the proceeds of the assessments provided for in this Subdivision. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.585 Consideration of report—Modification.

When the report provided for in Sections 3.52.581 and 3.52.582 is filed with the City Clerk, he or she shall present such report to the City Council for consideration. The City Council may modify such report in any respect. The report, as modified, shall stand as the report for the purpose of all subsequent proceedings except that such report may be confirmed, modified or corrected as provided in this Subdivision. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.586 Public hearing of protests.

After passing on the report, the City Council by resolution shall appoint a time and place for hearing protests to the proposed Improvements, the proposed Assessment District and/or the pro-

posed assessments and shall direct the City Clerk or the Assessment Engineer to give notice of the hearing as provided in this Subdivision, and shall designate a daily or weekly newspaper published and circulated in the City in which the notice shall be published. The hearing shall be held not less than thirty (30) days after the passage of such resolution unless the City Clerk or the Assessment Engineer receives written consents, signed by each Owner of a parcel within the Assessment District, to an earlier hearing date or to a waiver of the protest hearing. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.587 Waiver of protest hearing and notices.

Notwithstanding anything to the contrary contained in this Subdivision, any provision contained herein requiring the mailing, publication or posting of notices or requiring a public protest hearing within a specified time period may be waived or modified with the consent of all of the Owners of parcels of land included within an Assessment District. Any such waiver or modification shall be in writing and shall be executed by each Owner of each parcel of land included or proposed to be included in the Assessment District; provided, however, that any such written waiver or modification may be executed by an Owner in counterparts. If the City Clerk or the Assessment Engineer shall receive any such executed waiver or modification, it shall be deemed an amendment to the provisions of this Subdivision with respect to the Assessment District which is the subject of such waiver or modification. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.588 Notice of passage of Resolution of Intention—Posting.

After the adoption of the Resolution of Intention, the filing of the report and the setting of the time and place for hearing protests, the City Clerk or the Assessment Engineer shall cause notices of the passage of the Resolution of Intention to be posted. The notices shall be posted conspicuously on all the open streets contingent to the parcels of land within the proposed Assessment District, at not more than three hundred feet (300') apart on each street so posted, but no less than three (3) in all. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.589 Publication of notice.

The City Clerk or the Assessment Engineer shall also cause a notice similar in substance to the notice described in Section 3.52.590 to be published in the City pursuant to Section 6066 of the Government Code. The notices shall be posted and first published at least twenty (20) days before the date set for hearing of protests. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.590 Contents of notice.

The notices required by Sections 3.52.588 and 3.52.589 shall, except as otherwise noted:

A. Be headed "Notice of Improvements and Formation of Assessment District", in letters of not less than one inch (1") in height (except for the notice required by Section 3.52.589).

B. In legible characters, state the fact and date of passage of the Resolution of Intention, the filing of the report and the time and place set for hearing of protests.

C. Briefly describe the Improvements proposed to be constructed, acquired or installed, the proposed Assessment District and the proposed assessments.

D. Refer to the Resolution of Intention and report for further particulars.

E. Contain the name and telephone number of a local department or agency designated by the City Council to answer inquiries regarding the protest proceedings.

F. Contain any other information required under Section 4(c) of Article XIII D of the California Constitution. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.591 Effect of failure to post.

No proceeding shall be held invalid for failure to post notices on any street or streets if the sections herein relating to notices have been substan-

tially complied with or if waivers meeting the requirements set forth in Section 3.52.587 have been received. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.592 Notice to Owners.

At least forty-five (45) days before the date set for hearing of protests, the City Clerk or the Assessment Engineer shall mail, postage prepaid, notices of the adoption of the Resolution of Intention and the filing of the report to all persons owning real property proposed to be assessed whose names and addresses appear on the last equalized assessment roll for City taxes or who are known to the City Clerk or the Assessment Engineer. If property assessed by the State of California under Section 14 of Article XIII of the Constitution is proposed to be assessed, such notice shall be mailed to every Owner of such property at the address thereof shown on the last board roll transmitted to the County Auditor. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.593 Contents of notice to Owners.

The notice mailed to Owners pursuant to Section 3.52.592 shall contain:

A. A statement of the time, place and purpose of the hearing on the Resolution of Intention and report.

B. A statement of the proposed Improvements, the extent of the territory to be assessed and the maximum proposed cost of the Improvements.

C. The amount, as shown by the report, to be assessed against the particular parcel covered by the notice.

D. A statement that any person interested may file a protest in writing as provided in this Subdivision and such statement shall specify the mechanics of filing a protest and, if applicable, the intention of the City to exclude from the proposed Assessment District all properties belonging to Owners who have provided notice of their intent not to be part of such Assessment District.

E. The name and telephone number of the department or agency designated by the City Council to answer inquiries regarding the protest proceedings.

F. The notice also shall contain the information and ballot required under Sections 4(c) and (d) of Article XIII D of the California Constitution. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.594 Affidavit of City Clerk or Assessment Engineer.

Upon the completion of the mailing of the notices, the City Clerk or the Assessment Engineer, as appropriate, may file with the City Council an affidavit setting forth the time and manner of the compliance with the requirements of this Subdivision for publishing, posting and mailing notices. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.595 Filing of protests—Evidence of property ownership—Duties of City Clerk or Assessment Engineer.

After the City Council passes on the report pursuant to Sections 3.52.585 and 3.52.586, any interested person may object to the proposed Improvements, the extent of the Assessment District or to the proposed assessments, by filing a written protest with the City Clerk on or before the time set for the hearing. The protest shall contain a description of the property in which each signer thereof is interested sufficient to identify the property, and, if the signers are not shown on the last equalized assessment roll as the Owners of the property, the protest shall contain or be accompanied by written evidence that the signers are the Owners of the property. In addition the written protest shall contain, if applicable, a statement that such Owner requests the removal of its property from the proposed Assessment District. The City Clerk shall endorse on each protest the date of its receipt and, at the time appointed for the hearing, the City Clerk shall present to the City Council all protests filed with him or her. Only the protests filed with the City Clerk in accordance

with this Section shall be considered by the City Council. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.596 Waiver of right to protest.

Any written protest not made at the time and in the manner provided in Section 3.52.595 shall be deemed to be waived voluntarily by any person who might have made such protest and such person shall be deemed to have consented to the proposed Improvements, the extent of the Assessment District, the proposed assessment and any other act, determination or proceeding on which protest could be made. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.597 Correction of error or informality.

The City Council may remedy, revise and correct any error or informality in any act, determination or proceeding of the City Council or any officer of the City. The City Council may confirm, amend, alter, modify or correct the assessment and diagram in such manner as the City Council shall deem just and may instruct and direct the officer or person making the same to correct them in any particular. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.598 Majority protest—Withdrawal of protests.

If the City Council finds that any protest against the proposed Improvements, the proposed Assessment District or the proposed assessment is made by the Owners of more than one-half (1/2) of the parcels of land within the proposed Assessment District (excluding those Owners of parcels of land who have been previously removed from the proposed Assessment District at such Owner's request), and protests are not withdrawn so as to reduce the protests to less than a majority (excluding those Owners of parcels of land who have been previously removed from the proposed Assessment District at such Owner's request), no further proceedings shall be taken for a period of one (1) year from the date of the decision of the City Council on the hearing, unless the protests are overruled by an affirmative vote of four-fifths (4/5) of the members of the City Council pursuant to its powers under Article 16, Section 19 of the California Constitution. Any person making a protest may withdraw the protest, in writing, at any time prior to the conclusion of the protest hearing. The City Council may confirm, modify or correct the proposed assessment. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.599 Majority protest—Determination of ownership of signers—Evidence considered.

If it shall be necessary, in order to find whether a majority protest exists, to determine whether any or all of the signers of written protests are the Owners of property to be assessed, the City Council shall make such determination from the last equalized assessment roll, any written evidence submitted with a written protest and any other evidence received at the hearing. The City Council shall be under no duty to obtain or consider any other evidence as to ownership of property and its determination of ownership shall be final and conclusive. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.600 Public hearing; confirmation of assessment.

A. The City Council shall conduct a public hearing upon the proposed assessment not less than forty-five (45) days after mailing the notice of the proposed assessment to record owners of each identified parcel. At the public hearing, the City Council shall consider all protests against the proposed assessment and tabulate the ballots. The City Council shall not impose an assessment if there is a majority protest. A majority protest exists if, upon the conclusion of the hearing, ballots submitted in opposition to the assessment exceed the ballots submitted in favor of the assessment. In tabulating the ballots, the ballots shall be weighted according to the proportional financial obligation of the affected property. The provisions of this Section 3.52.600 shall prevail over any conflicting provisions of this Division VI.

B. When, upon the hearing, the proposed assessments provided for in Subsection 3.52.582.E and the maximum annual assessment provided for in Subsection 3.52.582.F are confirmed as filed, as modified, or as corrected, the City Council, by resolution, shall authorize the proposed Improvements to be constructed, acquired or installed in accordance with the provisions of this Subdivision, and declare its action upon the report, the establishment of the Assessment District and the assessments. The resolution shall be final as to all persons, and the assessments shall thereby be levied upon the respective parcels of land in the Assessment District.

C. If an annual assessment to pay for administrative costs is provided for pursuant to Subsection 3.52.600.B, the City Council shall determine, by resolution, the amount of the annual assessment for this purpose, which shall not exceed the maximum assessment provided for in Subsection 3.52.600.B and shall not exceed a reasonable estimate of costs actually incurred or likely to be incurred. This determination may be included in the resolution adopted pursuant to Subsection 3.52.600.B. The City Council may subsequently determine by resolution that the annual assessment shall be a different amount, but in no event shall the annual assessment exceed the maximum annual assessment provided for in Subsection 3.52.600.B. Resolutions adopted pursuant to this Subdivision shall be final as to all persons, and the annual assessment in the amount determined shall thereby be levied annually until changed by resolution adopted pursuant to this Section. These assessments may be collected in the same manner and in the same installments as the assessments levied pursuant to Subsection 3.52.600.B, and may be combined with those assessments for collection in any manner which is convenient and economical. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.601 Authority for City Council to make changes in Assessment District, assessments or proceedings.

A. Unless the power to proceed shall have ceased at the conclusion of the hearing on the proposed Improvements, the proposed Assessment District and the proposed assessments because of a majority protest, at any time before completion of such proceedings, the City Council may make changes in, to or from the boundaries of or the parcels included in the proposed Assessment District, the Improvements authorized to be constructed, acquired or installed, the assessments (including the amounts of any of the individual assessments therein), or in the proceedings, or any act, determination or provision made, or permitted to be made, by the City Council under and pursuant to this Subdivision, which act, determination or provision does not affect the jurisdiction of the City Council to order the Improvements or the assessment. The City Council shall not change the Assessment District to include any territory which will not, in its judgment, be potentially benefited by the Improvements.

B. At any time after the passage of the resolution provided for in Subsection 3.52.600.B, the City Council may make changes in or modify the Improvements with respect to a particular parcel of land within the Assessment District with the written consent of the Owner thereof, and the City Council may reduce the assessment with respect to a particular parcel of land within the Assessment District without the need for any such written consent. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.602 Changes to be made on notice and hearing—Exceptions.

All changes shall be made on notice and hearing as herein provided, except changes may be made:

A. At the hearing on the report, which:

1. Eliminate a portion of the Assessment District without increasing the amount of any assessment by reason thereof or substantially affecting the distribution of benefits from the Improvements; or

2. Exclude territory which will not be benefited by the remaining Improvements without increasing the amount of any assessment by reason thereof; or

3. Modify the Improvements or the assessment with respect to a particular parcel of land within the Assessment District with the written consent of the Owner thereof;

B. At any time after the Improvements are ordered and during the pendency of the proceedings, which:

1. Exclude territory which will not be benefited by the remaining Improvements without increasing the amount of any assessment by reason thereof; and

C. At any time after the passage of the resolution provided for in Subsection 3.52.600.B, which:

1. Modify the Improvements or reduce the assessment with respect to a particular parcel of land within the Assessment District with the written consent of the Owner thereof. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.603 Resolution—Description of proposed changes—Reference to maps, plats, etc.—Publication.

Before ordering any changes made, other than as provided in Section 3.52.602 hereof, the City Council shall adopt a resolution briefly describing the changes proposed to be made, stating the amount of the estimated increase or decrease in the cost of the Improvements by reason of the proposed changes, if applicable, and giving notice of a time and place when and where any interested person having any objection to the changes proposed to be made may appear before the City Council and show cause why the changes should not be ordered. The resolution shall also contain the name and telephone number of a local department or agency designated by the City Council to answer inquiries regarding the hearing proceedings. The resolution may describe the changes by referring to maps, plats, plans, profiles, detailed drawings or specifications on file in the office of the City Clerk or Assessment Engineer, which shall indicate the changes proposed to be made and which shall govern for all details thereof. The resolution shall be published pursuant to Section 6061 of the Government Code at least ten (10) days prior to the date of the hearing. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.604 Proposals to include additional territory or to increase assessment—To whom copy to be mailed.

If the resolution adopted pursuant to Section 3.52.603 proposes to include additional territory in the Assessment District, or to increase any assessment without written consent of the affected Owner, at least twenty (20) days prior to the hearing fixed therein, the City Clerk or the Assessment Engineer shall mail a copy of said resolution to all persons owning real property within said additional territory, or whose assessment is increased, whose names and addresses appear on the last equalized assessment roll or as known to the City Clerk or the Assessment Engineer. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.605 Written objection to proposed changes—Filing with City Clerk—Hearing and determination—Jurisdiction to order changes—Conclusiveness of order.

Written objection to the proposed changes may be filed with the City Clerk by any interested person at any time not later than the time set for the hearing. The City Council shall hear and pass upon such objections at the time appointed, or at any time to which the hearing thereof may be adjourned, and its decision thereof shall be final and conclusive. If no written objections to said changes have been delivered to the City Clerk up to the hour set for hearing thereon or if said objections have been heard and found by the City Council to be insufficient or have been overruled or denied, immediately thereupon the City Council by an affirmative vote of four-fifths (4/5) of its members shall acquire jurisdiction to order said changes made. The decision and determinations of the City Council ordering such changes after notice and hearing shall be final and conclusive upon all persons entitled to appeal thereupon to

the City Council. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.606 Proceedings when supplemental assessment deemed necessary—Credit.

If, as a result of any proposed changes or other events, the City Council shall determine that a supplemental assessment shall be necessary, the proceedings provided for by this Subdivision may either be combined with or conducted separately from the proceedings for such supplemental assessment. If said proposed changes shall eliminate or substantially reduce the estimated benefits to be received from the Improvements by any parcel of land within the Assessment District, the City Council shall not order any such changes without ordering a corresponding credit upon the individual assessment theretofore imposed upon such parcel. Said credit shall be made in the manner provided in Section 3.52.626. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.607 Limitations.

Any changes made pursuant to this Chapter shall be subject to the limitations, if any, contained in any law applicable to the proceedings (including but not limited to Article XIII D of the California Constitution), which law may impose limitations upon the amount by which the estimated cost of the Improvements may be increased by reason of such changes. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.608 Contest of validity.

The validity of an assessment or supplementary assessment levied under this Subdivision shall not be contested in any action or proceeding unless the action or proceeding is commenced within thirty (30) days after the assessment is levied pursuant to Subsection 3.52.600.A. Any appeal from a final judgment in such an action or proceeding shall be perfected within thirty (30) days after the entry of judgment. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.609 Diagram and assessment—Transmission and recordation.

Upon the passage of the resolutions provided for in Section 3.52.600, the City Clerk shall transmit to the Assessment Engineer the diagram and assessments adopted pursuant to Section 3.52.600, and any changes, modifications or corrections made by the City Council in accordance with this Subdivision. The City Clerk shall likewise transmit to the Assessment Engineer any diagrams or assessments which are subsequently changed or modified by the City Council pursuant to Subsection 3.52.601.B. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.610 Recording diagram and assessment.

The Assessment Engineer shall record or cause to be recorded the diagram and assessments received pursuant to Section 3.52.609 in a book to be kept for that purpose in his or her office. Upon the date of such recordation, the assessment shall become due and payable in accordance with its terms, except that the City Council may provide in the resolution adopted pursuant to Section 3.52.600 that all or any portion of the assessment becomes due and payable on the dates necessary for payment of the Bonds which represent the assessment or portion thereof. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.611 Recordation of notice of assessment.

Upon the passage of the resolution provided for in Subsection 3.52.600.B, or upon modification of the Improvements or the assessment with respect to a particular parcel within Assessment District pursuant to Subsection 3.52.601.B, the City Clerk or Assessment Engineer shall record a notice of assessment, as provided in Section 3114 of the Streets and Highways Code, modified to reflect any annual assessment for administrative costs, whereupon the assessment shall attach as a lien upon the property assessed, as provided in Section 3115 of the Streets and Highways Code, except that the annual assessment for administrative costs shall become a lien at the same time the

property tax becomes a lien each year. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.612 Notice to Owners of recordation of assessment.

A. Notice of recordation of assessment shall be given as provided in this Section.

B. Upon recordation of the assessment, the City Clerk or the Assessment Engineer shall mail, as provided in Subdivision (a) of Section 5070 of the Streets and Highways Code, a statement containing all of the following:

1. A designation by street number, or some other description, of the property assessed sufficient to enable the Owner to identify it.

2. The amount of the assessment.

3. The date of the recordation of the assessment.

4. The time and place of payment of the assessment and the effect of failure to pay within such time.

5. If Bonds are to be issued, a statement of that fact.

C. The City Clerk or the Assessment Engineer also shall give notice by publication pursuant to Section 6066 of the Government Code, which notice shall state all of the following:

1. That the assessment has been recorded as provided in Section 3.52.611.

2. The time and place of payment of the assessment and the effect of failure to pay within such time. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.613 Annual payment of assessments—Amount—Delinquency—Penalty.

A. Except as otherwise provided in the Resolution of Intention, the unpaid assessments shall be payable in annual series corresponding in number to the number of years of principal payments (including payments at maturity and mandatory sinking serial payments) payable with respect to the Bonds issued in connection with such assessments. The annual proportion of each assessment, together with the annual interest on the assessment, shall be payable in the same manner and at the same time and in the same installments as the general ad valorem taxes on real property are payable, and the assessment installments and the annual interest on the assessment shall be payable and become delinquent at the same times and in the same proportionate amounts and, except as provided in Subsection 3.52.613.B, shall bear the same proportionate penalties and interest after delinquency as do the general ad valorem taxes on real property.

B. The City Council may provide, in the Resolution of Intention, that a penalty of two percent (2%) per month of the total amount of the delinquent installment shall be added to the delinquent installment on the July 1 following the delinquency date and an additional penalty of two percent (2%) of the amount of the delinquency shall be added at the beginning of business on the first day of each succeeding month until that delinquent installment and all penalties thereon are fully paid. This penalty shall be in lieu of all other monthly penalties assessed by other provisions of law, but shall not prevent the City from imposing a delinquency penalty of ten percent (10%). The Treasurer or the designated paying agent shall collect the penalties with, and as a part of, the delinquent installments, or the City Council may designate another official and another method of collection. All penalties collected shall be used as provided in the resolution authorizing the issuance of the Bonds to which the assessments pertain.

C. Notwithstanding the foregoing, the resolution authorizing the issuance of the Bonds, or the City Council by separate resolution, may provide for another method or other methods for the payment of unpaid assessments, including but not limited to direct billing by the City of the assessments, payment of past due assessments in installments to resolve delinquencies, and reductions of assessments as described in Subsections 3.52.636.D, 3.52.640.B and/or Section 3.52.643. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.614 Interest on unpaid assessments—Computation.

Interest on all unpaid assessments shall begin to run from the date of the Bonds and shall be

computed at the rate specified in the Bonds secured by such assessments. Such interest shall for each year be computed and collected up to the next second day of September succeeding, no deduction being made by reason of any installment of such assessment being due or paid prior thereto in such year. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.615 Auditor's record of unpaid assessment—Collection costs.

A copy of the order of the Assessment Engineer determining the assessments remaining unpaid in accordance with Subdivision 3 and upon the security of which Bonds are issued shall be filed in the office of the Auditor. The Auditor shall keep a record in his or her office showing the several installments of the principal and interest on said assessments which are to be collected in each year. The Auditor shall annually enter in his or her assessment roll on which taxes will next become due, opposite each parcel of land affected in a space marked "private improvement for public benefit assessment", or by other suitable designation, the several installments of such assessment coming due during the fiscal year covered by such assessment roll, including in each case the interest due on such total unpaid assessments. The Auditor shall also add a maximum of five percent (5%) of the amount of the installments and of the interest so entered, not to exceed the Treasurer's estimate of the expenses of collection and in any case not to exceed eight dollars ($8.00) per parcel per installment, except with the Owner's written consent. The expenses of collection shall include necessary administrative expenses of the City incurred in providing the Auditor with current information regarding the ownership or division of the affected parcels of land to ensure the proper entry by the Auditor in his or her assessment roll of the several installments of the assessment coming due during the fiscal year covered by the assessment roll and the timely collection of the installments. The percentages, and the amount represented by the installments, when collected shall belong to the City and shall cover the expenses and compensation of the Treasurer incurred in the collection of the assessments, and of the interest and penalties added on to the assessments. No other percentage or amount shall be claimed by the City Council for the collections. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.616 Registration expenses—Pro rata share entered in assessment roll annually—Inclusion of estimated expenses in assessment and amount of Bonds.

In addition to the amounts set forth in Section 3.52.615, the Auditor shall further annually enter in the assessment roll on which taxes will next become due, opposite each parcel or land affected, in the manner set forth in Section 3.52.615, each parcel's pro rata share based on the amount of the assessment as a percentage of the total dollar value of all assessments then payable of the annual expenses of the City in connection with the registration of the Bonds under the system of registration authorized by Chapter 1.5 (commencing with Section 5050) of Division 6 of Title 1 of the Government Code, as determined by the City Treasurer. The expenses shall include the amount or estimated amount necessary to pay the fees and charges coming due during the fiscal year covered by the assessment roll of corporate or other authenticating agents, transfer agents, registrars, paying agents or other agents of the City. If the City performs any transfer, registration, authentication, payment or other function described in this Section, the expenses shall include a pro rata amount of the salaries of the City employees involved in the performance of the functions and all other costs incurred by the City in connection with the functions. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.617 County collection for City—Report—Expenses.

The City Treasurer may request the County Auditor to, within ninety (90) days after each installment becomes delinquent, render to the City a detailed report showing the amounts of the

installments, interest, penalties and percentages so collected on each proceeding and from what property collected, identifying any properties which are delinquent and the amount and length of time in arrears, and also giving a statement of the percentages retained for the expenses of making such collections. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.618 Payment under protest.

Taxpayers shall have the same right to pay assessments together with interest and any penalties thereon under protest as they have to pay general City taxes under protest, but their written protest must accompany each such payment. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.619 Land not separately assessed on tax roll.

If any parcel of land affected by any assessment is not separately assessed on the tax roll so that the installment of the assessment to be collected can be conveniently entered thereon, then the Auditor shall enter on the roll a description of the lot or parcel affected with the name of the Owners if known, but otherwise the Owners may be described as "unknown Owners", and extend the proper installment opposite the same. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.620 Advance collection to meet interest payments.

If it appears to the City Council that, according to the dates when taxes are collected in the City, there will be an insufficient amount on hand to pay the interest when due according to the method of collection provided by this Subdivision, the City Council may direct that such interest or some portion of it be collected in the year preceding that in which the same would otherwise be collected, and thereupon such interest or portion thereof shall be extended on the rolls for such preceding year and be due and collected therein. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.621 Amounts to be paid by Owner.

A. The Owner of assessed land, except land which has been ordered to judicial foreclosure pursuant to Section 3.52.636 (unless otherwise permitted under Section 3.52.636 or Section 3.52.638), may prepay the assessment and remove the lien of the assessment by paying to the Treasurer all of the following:

1. The amount of any delinquent installments of principal and interest, together with penalties accrued to the date of prepayment;

2. The unpaid, nondelinquent principal of the assessment, including principal posted to the tax roll for the current fiscal year but not yet paid;

3. An allowance for redemption premium, calculated by multiplying the amount of the unmatured principal by the redemption premium percentage stated in the Bonds (unmatured principal excludes principal due during the fiscal year of prepayment);

4. A reasonable fee, fixed by the Treasurer, for the cost of administering the prepayment and the advance redemption of Bonds;

5. Interest accrued to the next call date of the Bonds (the next call date shall be the next Bond interest payment date which is not less than ninety (90) days after the date of prepayment), with credit given, or a refund provided, for installments of interest posted to the current tax roll and actually paid; and

6. If applicable, a credit for a portion of the amount, if any, in the reserve fund calculated pursuant to Section 3.52.717.

B. The Owner of assessed land, except land which has been ordered to judicial foreclosure pursuant to Section 3.52.636, may prepay the assessment in part and remove the lien of the assessment in part by paying to the Treasurer all of the following:

1. The amount of any delinquent installment of principal and interest, together with penalties accrued to the date of prepayment;

2. A portion of the unpaid, nondelinquent principal of the assessment in increments of five thousand dollars ($5,000.00);

3. An allowance for redemption premium, calculated by multiplying the amount of the unmatured principal being prepaid by the redemption premium percentage stated in the Bonds;

4. A reasonable fee, fixed by the Treasurer for the cost of administering the prepayment and the advance redemption of Bonds; and

5. Interest accrued to the next call date of the Bonds (the next call date is the next Bond interest payment date which is not less than ninety (90) days after the date of prepayment). (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.622 Assessment prepayment subaccount of Bond redemption fund—Deposits—Disbursements.

Upon receiving a partial or full prepayment of an assessment, the Treasurer shall deposit it in an assessment prepayment subaccount of the Bond redemption fund. All prepayments may be commingled in a single account. From the account the Treasurer shall make disbursements as follows:

A. The administrative fee shall be deposited in the General Fund of the City.

B. Delinquent assessment installments shall be transferred to the redemption fund for the Bonds. If a special reserve fund has been established and is then being maintained under the resolution authorizing the issuance of the Bonds and has been depleted on account of the delinquencies, the delinquent amounts shall be transferred instead to the special reserve fund.

C. The installment of principal due in the fiscal year of prepayment shall be transferred to the redemption fund for the Bonds.

D. Interest accrued to the next call date shall be transferred to the redemption fund for the Bonds.

E. Penalties, and interest above the interest rate on the Bonds shall be promptly disbursed: (i) if a special reserve fund is then maintained under the resolution authorizing the issuance of the Bonds, as provided in Subsection 3.52.622.B above in the same manner as for delinquent assessment installments; or (ii) if no such reserve fund is maintained, to the registered Owner of the Bonds.

F. The balance in the assessment prepayment account shall be used to advance the maturity of Bonds to the next call date as provided in Subdivision 3. The amount of Bonds to be retired shall be the maximum for which principal and redemption premium, if applicable, may be paid in full from the prepayment account. Accrued interest on Bonds to be retired shall be paid from the redemption fund. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.623 Tender of Bond in payment of assessment; tenders at foreclosure sales.

A. Any interested Owner, any Owner of Bonds or the City, shall have the right to tender to the Treasurer in payment or part payment of any assessment installment or interest or penalties thereon which may be due or payable, any Bond which was sold and delivered upon the assessments, the said Bond to be taken at par and credit to be given for the accrued interest shown thereby computed to date of such tender. The Treasurer shall thereupon cancel such Bond and shall cause proper credit therefor to be entered on the records of such assessment in the office of the Auditor and Tax Collector.

B. If the highest bid for a lot or parcel sold pursuant to a judgment of foreclosure and order of sale exceeds five thousand dollars ($5,000.00) and the highest bidder elects to treat the sale as a credit transaction pursuant to Code of Civil Procedure Section 701.590(c), the balance due as provided in that Section may be paid in full or in part by tender of Bonds; provided, however, that the highest bidder must tender cash, certified checks or cashier's checks (and not Bonds) with its bid for costs of foreclosure (including attorney fees) and administrative charges incurred by the City with respect to removing the assessments from the rolls of the City or the County Treasurer Tax-Collector, any other administrative charges, and any amounts described in Subsections 3.52.638.B.3 and 4 or Subsections 3.52.638.C.1, 2, 3 and 4.

Tender of Bonds shall be made to the Treasurer within seven (7) days of the date of the sale.

Tender of cash or certified check or cashier's check for the balance of the sale price also shall be made to the levying officer within seven (7) days of the date of the sale. The Treasurer shall be charged with authenticating such tender and shall, within ten (10) days of the date of the sale, submit a written receipt to the levying officer who conducted the sale for the amount of the Bond tender accepted. The levying officer shall total the cash, certified checks and cashier's checks and any Treasurer's written receipt(s) for tendered Bonds to determine if the amount of the bid, plus accruing costs and interests, has been paid. If for any reason Bonds and/or the balance of the sale price are not tendered within seven (7) days of the date of sale (as required by the first two (2) sentences of this paragraph), the bidder shall forfeit any amounts accompanying its bid (as described in the last sentence of the preceding paragraph), with the amounts so forfeited to be used to pay administrative costs and expenses of the foreclosure sale, foreclosure attorney fees and any other administrative expenses, with the balance to be remitted to the City for deposit in the City General Fund.

C. The Treasurer is hereby authorized to establish procedures for the administration of this Section 3.52.623, which may contain limitations on, among other matters, the dates on which tenders may be made and the manner in which credit for Bonds tendered will be applied. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.624 Insufficiency of assessment—Payment of deficit from General Fund or supplemental assessment.

If the first assessment or the sale of Bonds to represent assessments levied pursuant to this Subdivision fails to raise sufficient money to pay all costs, damages and expenses of the Improvements, including any judgments rendered in the action and proceedings mentioned in this Subdivision and the costs and expenses thereof, the City Council may pay the deficit out of the General Fund, or may order a supplemental assessment to pay the deficit. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.625 Supplemental assessment.

The supplemental assessment shall be made and collected in the same manner, as nearly as possible, as the initial assessment. Subsequent supplemental assessments may be made, if necessary, to pay for the Improvements. At the hearing the City Council may confirm, modify or correct the supplemental assessment. The decision of the City Council thereon is final. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.626 Credit to assessment and supplemental assessment.

If there is no supplemental assessment, the entire amount of any surplus in any account of the Improvement Fund shall be applied as a credit to the assessment payable by the Owner or Owners of the parcel or parcels for which the Improvement was constructed and/or acquired or, as an alternative, may be used to call outstanding Bonds, to repay any advances or loans by the City to the Assessment District or in respect of any Bonds (including, but not limited to, under Sections 3.52.584 or 3.52.635), or pay any costs of the City incurred in the administration of the Assessment District that have not theretofore been reimbursed to the City, as the City Council or the City Treasurer may determine. If any supplemental assessment has been levied, any portion of the surplus shall be applied as a credit to the assessment or supplemental assessment, or both, or, as an alternative, may be used to call outstanding Bonds, to repay any advances or loans by the City to the Assessment District or in respect of any Bonds (including, but not limited to, under Sections 3.52.584 or 3.52.635), or pay any costs of the City incurred in the administration of the Assessment District that have not theretofore been reimbursed to the City, as the City Council or the City Treasurer may determine. The amount, if any, apportioned to each such parcel shall be credited against the next installment or installments unpaid upon it.

Any Bonds called pursuant to this Section shall be selected in accordance with Section 3.52.700.

There shall be transferred to the General Fund of the City any portion of the surplus which has not been paid to or claimed by the persons entitled thereto within two (2) years after the due date of the last installment of principal of the Bonds.

If any work to be performed as part of the Improvements is deleted or abandoned, the surplus in the account of the Improvement Fund with respect to such Improvement resulting from the deletion or abandonment, as applicable, of such work may be returned to the Owner or Owners of that parcel or parcels, in the manner provided above as a credit against such Owners' assessment. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.627 Powers of City Council.

The City Council shall possess all powers necessary for, incidental to, or convenient for, the collection, enforcement, administration or distribution of the assessment in accordance with its Charter and California law. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.628 Sale—No right of redemption.

Upon default in the payment of any installment of principal or interest on any assessment or reassessment, the lands securing such installments and assessments shall be sold, except as otherwise permitted under this Division, in the same manner in which real property in the City is sold for the nonpayment of general ad valorem taxes, but there shall be no specific right of redemption even though there may be such a right in connection with real property in the City that is sold for the nonpayment of ad valorem taxes. Any right of redemption shall only be as expressly provided in the assessment proceedings or as required by law. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.629 Effect of certificate of sale or deed.

If any parcel of land is sold for the nonpayment of taxes and of any installment of any assessment thereon, or of the penalties, interest or costs on the same, or for the nonpayment of any installment of the assessment or of the penalties, interest or costs on the same, any certificate of such sale and deed issued pursuant thereto is primary evidence of the regularity of all proceedings had prior thereto, and shall be conclusive evidence of all things of which Bonds issued upon the security thereof are conclusive evidence, and prima facie evidence of the regularity of all proceedings subsequent to the issuance of the Bonds, and such deed conveys to the grantee the absolute title to the lands described therein, free of all encumbrances, except the lien for other State, County and City taxes and unpaid installments, interest and penalties under the same proceeding and except all public improvement assessments which may have priority thereover. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.630 Purchase by the City.

A. The City may be the purchaser: (1) at any delinquency sale in the same manner in which it becomes or may become the purchaser of property sold for nonpayment of general ad valorem taxes, or (2) at a foreclosure sale as otherwise permitted under Section 3.52.638. If the City becomes the purchaser it may credit bid the amount of the delinquent assessment and of the delinquent interest for which the property is sold, without any requirement for then payment of the delinquent amount or any requirement for payment or transfer into the redemption fund.

B. If the City takes title to a lot or parcel in its own name or on behalf of the Owners of the Assessment District Bonds, the City:

1. Shall not be required to pay any assessment installments while it is the Owner although the installments shall continue to be levied.

2. Shall not be liable for injury or damages arising out of or related to its ownership or operation of the property, whether the injury or damage arises out of an act or omission of the City or any other person unless the injury or damages arise out of the sole active negligence of the City. Under no circumstances shall the City be liable for exemplary, punitive, or emotional distress damages.

3. Shall not be liable for any costs associated with environmental hazards or cleanup.

C. Bondholders on whose behalf the City holds title to a lot or parcel pursuant to Section 3.52.638 shall not be parties to any lawsuit, claim, or action related to the property and shall not be liable for any injury or damages arising out of or related to the property. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.631 Assignment of City's rights.

Nothing in this Chapter shall be deemed to prohibit the City from assigning rights granted to it under this Chapter to a third party. (Ord. C-7480 § 1, 1997)

3.52.632 [Intentionally omitted]. (Ord. C-7480 § 1, 1997)

3.52.633 [Intentionally omitted]. (Ord. C-7480 § 1, 1997)

3.52.634 Purchase subject to unpaid assessments.

Except as otherwise may be reduced under the provisions of Subsections 3.52.636.D, 3.52.640.B and/or Section 3.52.643, the purchaser (other than the City), at the Tax Collector's sale, or at a resale by the City if the City has become the purchaser, or at a foreclosure sale by order of the court, shall take the property subject to all unpaid installments of principal or interest on any assessment or reassessment, interest and penalties, costs, fees and other charges under the same proceeding which are not satisfied by application of the sales proceeds, and subject to all public improvement assessments which may have priority thereover. (Ord. C-7480 § 1 1997: Ord. C-6723 § 1 (part), 1990)

3.52.635 City payment of taxes—Temporary transfer to redemption fund.

The City shall have the right to advance and pay any other taxes wherever necessary to protect its interest in property against which there is a delinquent assessment. It may also at its discretion temporarily transfer moneys into the redemption fund from other funds in which such moneys are not immediately needed. If the City has determined to obligate itself to use available funds to cure any deficiency in the redemption fund pursuant to Subsection 3.52.659.C, it shall temporarily transfer available funds to the redemption fund upon determining that a deficiency exists. The moneys so transferred to be used to pay sums due from the redemption fund and to be retransferred therefrom out of the first available receipts. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.636 Cumulative remedy—Time for ordering commencement of action—Covenant to commence and prosecute action; reduction of assessments.

A. As a cumulative remedy, if any assessment or reassessment or installment thereof, or of any interest thereon, together with any penalties, costs, fees and other charges accruing under applicable taxation provisions are not paid when due, the City Council may order that the same be collected by an action brought in the superior court to foreclose the lien thereof as provided by this Chapter.

B. The City Council may, by resolution adopted prior to issuance of Bonds under Subdivision 3, covenant for the benefit of Bondholders to commence and diligently prosecute to completion any foreclosure action regarding delinquent installments of any assessments or reassessments which secure the Bonds that are to be issued. The resolution may specify a deadline for commencement of the foreclosure action and such other terms and conditions as the City Council may determine to be reasonable regarding the foreclosure action.

C. Except as may be reduced under the provisions of Subsection 3.52.636.D below, Subsection 3.52.640.B and/or Section 3.52.643, all installments, interest, penalties, costs, fees and other charges that are delinquent at the time of the ordering of a foreclosure action shall be collected in the action. In the event that a lot or parcel of property has not been sold pursuant to judgment in the foreclosure action at the time that subse-

quent installments and interest became delinquent, the court may include the subsequent installments, interest, penalties, costs, fees and other charges in the judgment or modified judgment.

D. Notwithstanding the previous provisions of this Section 3.52.636, the Treasurer may, before or after judgment or sale, waive delinquency penalties and redemption penalties if: (i) the waivers apply only to delinquent parcels, and (ii) the waivers are available only with respect to parcels for which all past due and currently due assessments and all other costs due are paid in full within a limited period of time specified by the Treasurer. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.637 Costs of action—Attorney's fee.

Costs in the action shall be fixed and allowed by the court and shall include a reasonable Attorney's fee, interest, penalties and other charges or advances authorized by this Subdivision, and when so fixed and allowed by the court the costs shall be included in the judgment. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.638 Judicial sale—Amount of payment—City bidding—City as purchaser—Attorney fees and costs—Applicable law.

A. The court shall have the power to adjudge and decree a lien against the parcel of land covered by the assessment or reassessment for the amount of the judgment and to order the premises to be sold on execution as in other cases of the sale of real property by the process of the court except:

1. The minimum bid amount provided in Section 3.52.636 shall apply instead of subdivision (a) of Section 701.620 of the Code of Civil Procedure.

2. The City may bid at the price provided in Section 3.52.636 by giving the levying officer a written receipt crediting all or part of the amount required to satisfy the judgment. If the City becomes the purchaser pursuant to bid, the provisions of Section 3.52.630 shall apply. The provisions of Section 3.52.634 shall apply to any subsequent sale by the City of the parcel.

3. Notwithstanding subdivision (c) of Section 701.620 of the Code of Civil Procedure, if the minimum price required to be paid for a lot or parcel pursuant to Section 3.52.636 is not obtained at a foreclosure sale, upon written request of the Treasurer, the levying officer shall retain the writ of sale and, provided that the writ of sale has not been returned to the court pursuant to paragraph (1) of subdivision (a) of Section 699.560 of the Code of Civil Procedure, may publish notice of sale pursuant to Section 701.540 of the Code of Civil Procedure without relevying on the property.

4. Notwithstanding subdivision (c) of Section 701.620 of the Code of Civil Procedure, if the minimum price required to be paid for a lot or parcel pursuant to Section 3.52.636 is not obtained at a foreclosure sale, the Treasurer may, in his sole discretion, make a written request to the levying officer conducting the sale to execute and deliver a deed of sale to the City or a nominee designated by the City, who shall take title to the lot or parcel on behalf of the Owners of the Bonds on whose behalf the suit was filed. Upon receiving the request and provided that the writ of sale had not been returned to the court pursuant to paragraph (1) of subdivision (a) of Section 699.560 of the Code of Civil Procedure, the levying officer shall execute and deliver the deed which shall satisfy the judgment and levy as to the lot or parcel so deeded. Receipt of a deed pursuant to this Subsection shall not be deemed a credit bid purchase pursuant to Subsection 3.52.638.C below.

B. Unless one (1) or more of the following amounts are otherwise reduced under the provisions of Subsections 3.52.636.D, 3.52.640.B and/or Section 3.52.643, the lot or parcel may not be sold unless the amount to be paid pursuant to the bid (including by tender of Bonds as described in Subsection 3.52.623.B) equals or exceeds the sum of all of the following amounts:

1. The amount of the judgment with costs and interest thereon.

2. Costs and interest on the judgment accruing after issuance of the writ pursuant to which the sale is conducted.

3. The levying officer's costs.

4. Any other amounts which are required by law to be bid in order that the lot or parcel may be sold.

C. The City may bid at the price provided for in Subsection 3.52.638.B by giving the levying officer a written receipt crediting all or part of the amount required to satisfy the judgment (or by means of tendering Bonds as described in Subsection 3.52.623.B), except that the City shall pay all of the following amounts in cash or by certified cashier's check:

1. The levying officer's costs remaining unsatisfied.

2. The amount of any preferred labor claims.

3. Exempt proceeds.

4. Any other claim that is required by law to be satisfied.

D. If the City becomes the purchaser pursuant to bid as provided for in Subsection 3.52.638.C and the City subsequently sells the property, the City shall distribute the proceeds of the sale in the following order of priority: (1) to pay costs and administrative expenses of the foreclosure sale (including attorney fees), (2) to reimburse the City for any amounts advanced by the City or costs incurred by the City in connection with the foreclosure sale, (3) to the redemption fund, to the extent of any delinquent assessments, and (4) the remainder to be paid to the Owners of the Bonds to which the assessments pertain. From the amount that the City is required to pay into the redemption fund, the City shall reimburse the special reserve fund, if any is then maintained under the resolution authorizing the issuance of Bonds pertaining to the related assessments, the amount, if any, of funds advanced from the special reserve fund to the redemption fund to cover delinquent installments of the assessment or reassessment and interest with respect to the lot or parcel of property which is sold. To the extent that the City has advanced funds other than, or in addition to, funds from a special reserve fund and the funds are included in the sale proceeds, the obligation of the City to remit amounts to the Bond Owners is reduced by a corresponding amount and said amount shall be transferred to the General Fund of the City.

E. Notwithstanding Subsection 3.52.638.D, the City is not required to pay into the redemption fund any amount that exceeds in the aggregate the sum of all of the following:

1. The amount required to bring current delinquent installments of the assessment or reassessment and interest with respect to which the lot or parcel of property is sold.

2. Simple interest on all the amounts from the dates of delinquencies until the date of sale, at the rate or rates of the Bonds.

F. If the lot or parcel of property is sold at the execution sale to a purchaser other than the City, the City shall pay the sale proceeds that it receives, up to the amount described in Subsection 3.52.638.E above, into the redemption fund. From the amount that the City is required to pay into the redemption fund, the City shall reimburse the special reserve fund, if any is then maintained under the resolution authorizing the issuance of Bonds pertaining to the related assessments, the amount, if any, of funds advanced from the special reserve fund to the redemption fund to cover delinquent installments of the assessment or reassessment and interest with respect to the lot or parcel of property which is sold. If the special reserve fund, if any, is thereby reimbursed, the City may reimburse other funds advanced by the City to cover delinquent installments and interest. If not needed for such reimbursement, the City shall remit to the Owners of the Bonds any remaining interest and penalties to the extent that they are included in the sale proceeds received.

G. Notwithstanding Subsection 3.52.638.D, Attorney fees and costs awarded by the judgment and postjudgment interest are not required to be paid into the redemption fund or to be remitted to Bond Owners.

H. The foreclosure action shall be governed and regulated by this Subdivision and where not in conflict with this Subdivision, by the applicable laws of the State. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.639 Credit upon assessment roll—Release of Tax Collector—Costs—Future assessments.

When any foreclosure actions are ordered, or when subsequent installments and interest that are also to be made the subject of a foreclosure action thereafter become delinquent, the Tax Collector shall be credited upon the assessment roll then in his or her hands with the amount charged against him or her on account of the assessments or reassessments to be sued on and he or she shall be relieved of further duty in regard thereto. The Tax Collector, in addition to the costs recovered in foreclosure, may charge the actual costs incurred in removing these sums from the tax roll.

Thereafter, the assessment or reassessment or installment thereof or interest thereon, and the penalties, costs, fees and other charges accrued under applicable taxable provisions, that are ordered or are otherwise to be collected in a foreclosure action, shall no longer be collectible by the Tax Collector, but shall be collectible in the manner and to the extent provided by this Subdivision. Installments, interest, penalties, costs, fees and other charges that do not become the subject of a foreclosure action shall remain collectible by the Tax Collector as otherwise provided by applicable law, subject to reduction pursuant to Subsection 3.52.640.B and Section 3.52.643 hereof. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.640 Dismissal of foreclosure action—Required payments; assessment amnesty program.

A. At any time after the Tax Collector has been relieved of further duty with regard to amounts charged against him or her on account of the assessments or reassessments described by Section 3.52.639 and prior to a judgment of foreclosure, the City shall dismiss the foreclosure action upon payment of the sum of all of the following amounts:

1. The amount of any delinquent installments of principal or interest of the assessment or reassessment, together with interest and penalties, costs, fees and other charges accrued thereon to the same extent that they accrue against real property for nonpayment of general property taxes (and are not otherwise reduced under the provisions of Subsections 3.52.636.D, 3.52.640.B and/or Section 3.52.643), to the date of payment.

2. Costs of suit, including, but not limited to, service and recording fees and the costs of abstract or report of search of, or litigation guaranty with respect to, all claims of interest in the land.

3. Attorney fees authorized by the City.

4. The Tax Collector's costs authorized by Section 3.52.638.

B. The City may, subject to the provisions set forth below, declare a "delinquent assessment amnesty program". Such program may be declared by the City Council if the total dollar amount of assessment delinquencies (not including delinquency penalties and redemption penalties) in the Assessment District have been equal to or greater than ten percent (10%) of the total assessment levy in each of the two (2) most recent calendar years. Such delinquent assessment amnesty program shall begin and end on a date certain and shall not extend for a period of more than sixty (60) days. Notice of the delinquent assessment amnesty program shall be mailed to all property owners in the Assessment District at their address as it appears on the last secured roll at least thirty (30) days prior to the amnesty deadline, and shall contain at a minimum: (i) the name and phone number of the person representing the Assessment District who may be contacted to determine the amount due on any parcel if paid in accordance with the program; (ii) the method and place of payment; (iii) the deadline for the program and for making such payment; (iv) a statement in bold that the program expires on the payment deadline date and there will be no additional programs absent the authorization of the City Council; and (v) the percentage or maximum amount of penalties and interest that will be waived on any parcel. The delinquent assessment amnesty program shall provide that upon payment of: (i) all past due assessments, (ii) administrative costs (including costs to remove the assessments from the tax rolls, regular administrative costs, and fees associated with establish-

ing and administering the assessment amnesty program), and (iii) fees and expenses of any foreclosure and sale proceedings (including the fees and expenses of foreclosure counsel) by the stated deadline, the Assessment District will waive some or all of the delinquency penalties and redemption penalties incurred with respect to such assessments. The percentage or maximum amount of penalties and interest waived shall be in the City Council's discretion. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.641 Action in name of City—Time for commencement—Complaint.

The foreclosure action shall be brought in the name of the City, and may be brought at any time prior to the expiration of four (4) years subsequent to the last maturity of the principal of Bonds secured by the assessment or reassessment. The complaint may be brief and include substantially only the following allegations with reference to the assessment or reassessment sought to be collected:

A. That, on a date stated, the City Council passed its resolution ordering certain Improvements to be done, without describing the same.

B. That the Improvements were done pursuant to the resolution.

C. That an assessment to pay the cost of the Improvements was duly made and was authorized to be collected, but remained unpaid on a stated date.

D. That certain property (describing it) was therein assessed or reassessed a stated amount and that Bonds upon the security of the assessment or reassessment were duly issued under Subdivision 3, identifying by name the applicable issue of the Bonds, but it is not necessary to state the amount, number, denomination or other terms of the Bonds.

E. That, on a date stated, a certain sum came due against the described property on the assessment and had not been paid and that the City Council had ordered the action to foreclose.

No affirmative defenses shall be allowed by the Court in any foreclosure action, but this prohibition shall not prevent any claims being raised in a separate action for monetary damages or other relief unrelated to the foreclosure action. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.642 Calculation of penalties, costs and interest.

The amount of penalties, costs and interest due shall be calculated up to the date of the judgment. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.643 Failure of property to sell at minimum price—Petition to modify judgment—Notice—Hearing—Determinations—Purchase by Owners or holders of security interests prohibited—Attorney fees and costs.

A. In the event a lot or parcel of property fails to sell for the minimum price required by Section 3.52.636, the City may petition the court to modify its judgment and authorize the property to be sold at a lesser minimum price or without a minimum price. Notwithstanding the following provisions of this Section 3.52.643, the court shall modify its judgment and authorize the property to be sold at a lesser or no minimum price, without any notice or hearing, if the petition is accompanied by the written consents of the Owners of all of the Bonds outstanding.

B. Written notice of hearing on the petition under Subsection 3.52.643.A, unless otherwise not required by reason of the second sentence of Subsection 3.52.643.A, shall be given by certified or registered mail to all registered Owners of any outstanding Bonds secured, in whole or in part, by the delinquent assessment or reassessment, and to any paying, fiscal or other agents of the City appointed with respect to any of the Bonds. If any of the outstanding Bonds are payable to bearer and not registered to other than bearer, notice of the hearing, unless otherwise not required by reason of the second sentence of Subsection 3.52.643.A, shall also be given by publication at least once in a financial publication with national circulation and additionally as the court shall rea-

sonably require. The hearing shall be held not earlier than ten (10) days after the notice is given.

C. The court may, after a hearing held pursuant to notice as provided for by Subsection 3.52.643.B, modify the judgment and authorize the property to be sold at a lesser minimum price or without a minimum price, if the court determines, based on the evidence introduced at the hearing, any of the following:

1. Sale at the lesser minimum price or without a minimum price will not result in an ultimate loss to the Bondholders.

2. Owners or holders of seventy-five percent (75%) or more of the outstanding Bonds, by principal amount, have consented to the petition and the sale will not result in an ultimate loss to the nonconsenting Bondholders.

3. Owners or holders of seventy-five percent (75%) or more of the outstanding Bonds, by principal amount, have consented to the petition and all of the following apply:

a. By reason of determination pursuant to Subsection 3.52.659.C, the City is not obligated to advance available funds to cure a deficiency.

b. No bids equal to or greater than the minimum price have been received at the foreclosure sale.

c. No funds remain in the special reserve fund, if any.

d. The City has reasonably determined that a reassessment and refunding proceeding is not practicable, or has in good faith endeavored to accomplish a reassessment and refunding and has not been successful, or has completed reassessment and refunding arrangements which will, to the maximum extent feasible, minimize the ultimate loss to the Bondholders.

e. No other remedy acceptable to Owners or holders of seventy-five percent (75%) or more of the outstanding Bonds, by principal amount, is reasonably available.

4. Owners or holders of one hundred percent (100%) of the outstanding Bonds have consented to the petition.

Notwithstanding the foregoing, the court may take action to modify the judgment without any hearing, as permitted by the second sentence of Subsection 3.52.643.A at the written request of the City accompanied by the written consents of the Owners of all of the Bonds outstanding.

D. The assessment or reassessment lien upon property sold pursuant to this Section at a lesser price than the minimum price shall be reduced by the difference between the minimum price and the sale price.

E. The court shall permit participation by the Bondholders in its consideration of the petition as necessary to its determinations.

F. None of: (1) the property owner, (2) the holder of a security interest in the property, (3) any other defendant in the foreclosure action, (4) any agent, of any entity described in the foregoing clauses (1), (2) and (3), (5) any person or entity (including but not limited to spouses, minor children and relatives) who, with any such property owner, holder of security interest, defendant in the foreclosure action or agent (a) is a member of a partnership, limited liability company or controlled group of corporations (as defined in Section 1563(a) of the Internal Revenue Code, except that "more than 10 percent" shall be substituted for "at least 80 percent" each place it appears therein) and/or (b) would result in a disallowance of losses under Section 267 or 707(b) of the Internal Revenue Code, may purchase the property at the foreclosure sale for less than the minimum price determined pursuant to Section 3.52.638. Each purchaser at less than the minimum price shall certify in writing under penalty or perjury to the levying officer at the sale the purchaser's compliance with the requirements of this Subdivision.

G. The court may make provisions for the payment of attorney fees and costs incurred in proceedings pursuant to this Section as the court deems proper, and need not require that the fees and costs be paid out of the proceeds of any sale authorized pursuant to this Section. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.644 Assessment as trust fund for Bonds.

In the event Bonds are ordered to be issued, the unpaid assessments, as shown on the list filed

by the Assessment Engineer, and any reassessments which may be issued thereon or in lieu thereof, together with interest thereon shall remain and constitute a trust fund for the redemption and payment of the principal of the Bonds and for the interest which may be due thereon. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.645 Assessment liens—Priority—Continuance—Notice.

From the date of the recordation pursuant to Sections 3114 and 3115 of the Streets and Highways Code, each assessment and reassessment and each installment thereof and the interest and penalties thereon under this Subdivision is a lien upon the land upon which they are levied. Pursuant to Article 13 of Chapter 4 of Part 1 of Division 2 of Title 5 of the Government Code, the lien of said assessments shall be coequal to and independent of the lien for general taxes, and, except as provided in Section 53936 of the Government Code, not subject to extinguishment by the sale of the property on account of the nonpayment of any taxes, and prior and superior to all liens, claims and encumbrances except: (a) the lien for general taxes or ad valorem assessments in the nature of and collected as taxes levied by the State or any County, City, special district or other local agency; (b) the lien of any special assessment or assessments the lien date of which is prior in time to the lien date of the assessment for which the deed is issued; (c) easements constituting servitudes upon or burdens to said lands; (d) water rights, the record title to which is held separately from the title to said lands; and (e) restrictions of record. Unless sooner discharged, the lien continues for a period of ten (10) years from the date of recordation or, if Bonds are issued to represent the assessments, until the expiration of four (4) years after the due date of the Bonds. All persons have constructive notice of this lien from the date of the recordation. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.646 Priority of reassessment and refunding assessment lien—Supplemental assessment.

The lien of a reassessment or a refunding assessment shall have the same priority as the original assessment to which it relates. A supplemental assessment is a new assessment. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.647 Unmatured installments, interest and penalties secured by lien not within terms of general warranty of title.

Unmatured installments, interest and penalties secured by any such lien or liens shall not be deemed to be within the terms of any general warranty of title. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.648 Reassessment.

If any assessment heretofore or hereafter issued is void or unenforceable, for any cause, or if Bonds are issued to represent or be secured by any assessments and such issuance is not effective through the curative provisions in relation thereto under the law pursuant to which the Improvements were authorized or under this Division to make them valid and enforceable, then a reassessment may be made. The reassessment shall be made upon the demand of the Owner or holder of Bonds aggregating one-third (1/3) of the principal amount outstanding, or upon order of the City Council, and shall be made in the manner and form provided by the law pursuant to which the Improvements were authorized, if any such valid procedure is provided, and otherwise as provided by Sections 5500 through 5510 of Chapter 19, Part 3, Division 7 (Improvement Act of 1911) of the Streets and Highways Code. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.649 Reassessment as trust fund for Bonds—Issuance of new Bonds.

When made, the reassessment shall constitute a trust fund for the redemption and payment of the original Bonds issued against the original as-

sessment; or the City Council may call in the original issue of Bonds outstanding and issue new Bonds upon the security of the reassessment in lieu thereof. If the City Council determines that new Bonds shall be issued upon the security of the reassessment, the notice of hearing upon the reassessment shall contain a declaration of intention to issue Bonds substantially in the form provided for in Section 3.52.663. Upon confirmation of the reassessment the City Council may issue the new Bonds after the same notice and hearing as is required for the original issuance of Bonds. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.650 Calling in original issue—Issuance of new Bonds.

If the City Council calls in the original issue of outstanding Bonds, the City Council may direct the Treasurer to, and the Treasurer shall thereupon, advance the maturity of the outstanding Bonds bearing interest in the manner provided in Subdivision 3, notwithstanding the fact that there may not be surplus moneys in the redemption fund with which to pay the same. New Bonds shall be issued in an aggregate amount equal to the total balance of the reassessment unpaid and shall bear interest from the date of recordation of the reassessment at the rate fixed by the City Council. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.651 Ratable issuance to holders of original Bonds.

Except as otherwise provided in the Resolution of Intention, upon the surrender of the outstanding Bonds, the new Bonds shall be issued ratably to the holders of the original outstanding Bonds. Each holder of such original Bonds shall be entitled to such proportion of the new Bonds as the total amount of the principal and interest due him on his original Bonds, upon the date of the recordation of the reassessment, bears to the total amount of the principal of the new Bonds. In making distribution, the City Council may assign the different Bonds and allot maturities in such manner as to it shall seem equitable. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.652 Apportionment of assessment.

If any lot or parcel of land upon which there is an unpaid assessment is divided, including a division into condominium interests as defined in Section 783 of the Civil Code, or the ownership of a portion of such lot or parcel of land is transferred to another person, the City Council may order the Assessment Engineer to file with the City Clerk an amended assessment of the original parcel of land affected by such division or transfer of ownership, segregating and apportioning the unpaid installments of the original assessment in accordance with the benefits to the several parts of the original parcel plus costs and fees of making the apportionment. The City Council shall, at the time of ordering the amended assessment, fix the amount of costs and fees for preparing the amended assessment, the notices and the amended assessment diagram. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.653 Filing of report and amended assessment.

The Assessment Engineer shall file with the City Clerk a report and an amended assessment of the parcels of land described in the order of the City Council, together with a map or plat showing how such lots or parcels have been divided. The total amount of the assessments of the several portions of any one (1) original parcel shall be equal to the unpaid assessments upon the original parcel of land, plus the costs and fees for making the amended assessment, the notices and the amended assessment diagram as determined by the City Council under Section 3.52.652. The Assessment Engineer shall apportion the costs and fees to the respective parcels in proportion to the amount of the divided assessments against the parcels. Prior to making a division and prior to making the amended assessment, the Assessment Engineer shall notify the Owner of the original parcel assessed, as the name of the Owner appears on the last equalized roll for taxes, or as it is known

to the Assessment Engineer, of the order of the City Council fixing the costs and fees of the apportionment, and directing that the payment thereof be made to the Assessment Engineer within fifteen (15) days of the notification. In the event the amount of the costs and fees of the apportionment is not paid within fifteen (15) days of the notification, the Assessment Engineer shall proceed to prepare the amended assessment and shall show separately thereon, but as a part of the total, the amount of costs and fees chargeable to each divided parcel. The Assessment Engineer shall deposit all such costs and fees in the General Fund of the City. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.654 Time and place of hearing—Notice.

Upon the filing of the Assessment Engineer's report and amended assessment, the City Clerk shall fix a time and place for a hearing upon the amended assessment and shall give notice of the hearing by publication. The notice shall contain a statement of the time fixed for the hearing upon the amended assessment and any objections thereto, which time shall not be less than fifteen (15) days from the first publication of the notice. The notice shall contain a reference to the original assessment and to the improvement proceedings, and shall refer to the report and map or plat of the amended assessment for particulars and no other description of the lots or parcels of land affected thereby shall be necessary. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.655 Protests—Hearing—Finality of decision.

All persons interested in the original assessment, or in the lands affected thereby or in the Bonds secured thereby, may, at the time of the hearing or at the time to which the hearing may be continued, appear and protest against the amended assessment. At the hearing the City Council shall hear and determine all objections to the division of the assessments and shall confirm or modify the same. All determinations and decisions of the City Council shall be conclusive upon all persons entitled to object under the provisions of this Section. Final action of the City Council upon the report and amended assessment shall be taken on or before the fifteenth (15th) day of July of any year. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.656 Filing amended assessment.

The City Clerk shall file the amended assessment as confirmed or modified by the City Council with the Auditor, who shall annually thereafter enter upon the assessment roll the installments becoming due on each component part of the original parcel opposite a description of the respective parcels so assessed. The amount charged for fees and costs as shown on the amended assessment as to each parcel shall be entered upon the assessment roll and shall be collected along with the first installment of the amended assessment. The Assessment Engineer shall deposit all such costs and fees in the General Fund of the City.

The amended assessment shall be accompanied by an amended map or plat prepared pursuant to Section 3.52.653. Such amended map or plat shall be designated "amended assessment diagram amending Assessment No. _____, Assessment District _____, State of California". The amended map or plat shall substantially conform to the requirements and specifications provided for in Section 3114 of the Streets and Highways Code, and shall be filed by the City Clerk in the office of the County Recorder of the County. The County Recorder may charge an appropriate fee for the expense incurred in filing the amended map or plat. The map or plat shall be cross-indexed by the Recorder to the original assessment diagram which it amends.

The amended map or plat shall include on its face that it amends the assessment diagram for Assessment District No. _____, City of Long Beach, County of Los Angeles, State of California prior recorded at Book _____ of Maps of Assessment Districts at page _____, in the office of the County Recorder for the County of Los Angeles, State of California. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

Subdivision 3. Procedures for the Sale and Issuance of Bonds

3.52.657 System for issuance of Bonds.

This Subdivision provides a system for the issuance of Bonds to represent and be secured by the assessments made to pay the costs and expenses of the Improvements and the provisions of this Subdivision shall not apply to or affect any other provisions of law. When any proceedings for the issuance of Bonds are commenced under this Subdivision, the provisions of this Subdivision and no other shall apply to such proceedings. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.658 Power of City Council.

The City Council, exercising the powers reserved to the City under the Constitution of the State of California and its powers under the provisions of the Charter of the City, may determine that Bonds shall be issued as provided in this Subdivision to represent and be secured by the assessments levied pursuant to Subdivision 2. Such Bonds may be serial or term Bonds, or both, and shall be issued and sold to assist in the financing of the Improvements. The City Council may not issue Bonds secured by assessments levied pursuant to Subsection 3.52.600.B to pay administrative costs. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.659 Resolution of Intention—Contents.

If the City Council determines that Bonds shall be issued as provided in this Subdivision to represent the expense of any proposed Improvement, it shall, in the Resolution of Intention to authorize the Improvements as contemplated in Section 3.52.579, do all of the following:

A. Declare that serial and/or term Bonds shall be issued pursuant to this Subdivision to represent the expenses of the proposed Improvements.

B. Specify the rate (whether variable or fixed) and the maximum rate of interest which the Bonds shall bear.

C. State the determination of the City as to whether the City will obligate itself to advance available funds from the City Treasury to cure any deficiency which may occur in the funds and accounts established for the payment of the Bonds. The determination made pursuant to this Section shall be clearly stated in the text of the Bonds issued pursuant to this Subdivision, and the title of the Bonds shall include the words "Limited Obligation Improvement" in the event that the City Council determines that the City will not be obligated to cure any deficiency in the funds and accounts established for the payment of the Bonds. A determination not to obligate itself, however, shall not prevent the City from, in its sole discretion, advancing such funds.

D. State, if applicable, that the Bonds issued pursuant to this Subdivision may be refunded under certain conditions and include specific conditions under which the Bonds may be refunded, including the maximum interest rate and the maximum number of years to maturity of the refunding Bonds. Also include a statement that any adjustment to assessments resulting from the refunding will be done on a pro rata basis. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.660 Determination that Bonds not be subject to refunding until specified date.

The City Council may determine that Bonds issued pursuant to this Subdivision shall not be subject to refunding pursuant to the procedures of Section 3.52.661 hereof until a specific date which shall not be more than ten (10) years after the issuance date of the Bond. This determination, however, shall not apply to, or in any manner limit: (i) advancement of the maturity of any Bond or Bonds pursuant to the procedures under Subdivision 2 or Subdivision 3, or (ii) the redemption and payment of any Bonds pursuant to subsequent assessment proceedings which provide for the payment in full of all amounts necessary to eliminate any fixed special assessment liens previously imposed upon any assessment parcel included in the new assessment district. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.661 Refunding Bonds.

Any refunding of the Bonds shall be accomplished pursuant to the procedures of Division 11.5 (commencing with Section 9500) of the Streets and Highways Code, except that if, following the filing of the report specified in Section 9523 of the Streets and Highways Code and any subsequent modifications of the report, the City Council finds that each of the conditions specified in the Resolution of Intention is satisfied and that the adjustments to assessments are on a pro rata basis, the City Council may approve and confirm the report and may, without further proceedings, authorize, issue and sell the refunding Bonds pursuant to Chapter 3 (commencing with Section 9600) of Division 11.5 of the Streets and Highways Code. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.662 Description of Bonds in assessment.

A description of the Bonds specifying the information required pursuant to Section 3.52.659 shall be inserted in the assessment prepared by the Assessment Engineer. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.663 Form of Bond declaration.

The Bond declaration in the Resolution of Intention, assessment and notice of recording the assessment may be substantially in the following form:

> "Notice is hereby given that Bonds to represent unpaid assessments, and to bear interest at a rate not to exceed the maximum rate permitted by law, will be issued hereunder in the manner provided by Subdivision 3 of Division VI of the Long Beach Municipal Code, Chapter 3.52, and such Bonds shall mature not later than 39 years from the second day of September next succeeding 12 months from the original issuance date of such Bonds." (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.664 List of unpaid assessments.

After confirmation of the assessment levied by the City Council for any Improvement and after thirty (30) days from the date of recording the assessment in the office of the Assessment Engineer, the Assessment Engineer shall make and file with the Treasurer a complete list of all such unpaid assessments. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.665 Determination of amount of assessments payable—Delivery of Bonds.

The Treasurer shall determine the aggregate amount of such assessments and shall provide for the issuance of Bonds in such amounts and at such times as determined in accordance with the provisions of the trust indenture or resolution to be executed in connection with the issuance of the Bonds. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.666 Disposition of the Bonds.

The Bonds shall be sold at private sale, in such manner and place or places, either within or without the United States, and at such price or prices, above or below par, as the City Council shall determine by resolution. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.667 Incidental expenses.

The estimated cost of Incidental Expenses of the Improvements shall be included in the assessments. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.668 Effect of inability to issue the Bonds secured by particular unpaid assessments.

If Bonds cannot be issued upon the security of any particular unpaid assessments because of a restraining order, injunction or other cause not applicable to other unpaid assessments, the issuance of Bonds upon the security of the assessments not affected by such restraining order, injunction or other cause, shall not be delayed, and such Bonds may be issued in advance of the issuance of the Bonds so affected. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.669 Principal and interest payments.

The Bonds shall be in such denominations, in such form, and payable at such time or times, in lawful money of the United States of America, and at such interest rate or rates, either fixed or variable, as the City Council shall determine by resolution.

The Bonds shall bear interest from the date of the Bonds on all sums unpaid, until the whole of the principal sum and interest are paid. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.670 Date and division of issue—Classification of assessments as to maturity.

The City Council shall fix the date of the Bonds. The City Council may divide the principal amount of any issue into two (2) or more divisions and fix different dates for the payment of Bonds of each division. The Bonds of one (1) division may be made payable at different times than Bonds of any other division.

The City Council, in its discretion, may determine in like manner to classify assessments into different terms of maturity so that smaller assessments may be made to mature over a shorter period of time and, in that event, the Bond declaration in the Resolution of Intention, or in the change proceedings taken under and in accordance with the provisions of the same subdivision under which the Resolution of Intention was adopted, in the assessment and in the notice of recording the assessment, may recite that the Bonds shall mature a maximum rather than an exact number of years. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.671 Maximum maturity date.

No Bond shall mature and be payable on a date which shall exceed thirty-nine (39) years from the second day of September next succeeding twelve (12) months from its original issuance date. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.672 Redemption—Redemption premium.

Except as otherwise provided in the Resolution of Intention, each Bond, or any portion of the Bond in a fixed amount or any integral multiple of the fixed amount, shall be subject to redemption in advance of its maturity on any interest payment date upon payment to the registered owner of the principal and accrued interest to the date of redemption together with a redemption premium equal to five percent (5%) of the principal. Prior to the issuance of the Bonds, the City Council may reduce the redemption premium to an amount equal to not less than three percent (3%) of the principal for the first five (5) years of the term of the Bonds or eliminate the redemption premiums for redemptions occurring after the first five (5) years of the term of the Bonds, or both. Redemption premiums may also be eliminated by vote of the Bond Owners, as permitted under any amendment provisions of any resolution or indenture authorizing the issuance of Bonds. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.673 Bonds—Signatures—Seal.

The Bonds shall be signed by the Treasurer and the City Clerk. The City Council may by order authorize the use upon the Bonds of an engraved, printed or lithographed signature of the Treasurer and the City Clerk in place of a signature by hand. It may also authorize the seal to be placed in like manner on the Bonds. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.674 Effect of issuance.

The Bonds, by their issuance, shall be conclusive evidence of the regularity of all proceedings had prior thereto under this Subdivision and under the law pursuant to which the Improvements were constructed. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.675 Authority to issue Bonds.

As an alternative to any other authority, the City Council may, at its discretion, issue Bonds bearing a variable interest rate pursuant to Subdivision 2 and Subdivision 3. This Subdivision does not alter or restrict authority to authorize assessment or issue Bonds pursuant to any other provision of Subdivision 2 and Subdivision 3 in any

way. If the City Council in its discretion issues Bonds bearing a variable interest rate pursuant to this Subdivision, all provisions of this Subdivision shall apply to proceedings pursuant to this Subdivision, except as expressly provided in this Subdivision. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.676 Unpaid assessments—Collection—Costs—Delinquency penalties and interest.

The unpaid assessments shall be payable in substantially the manner set forth in Section 3.52.613 of Subdivision 2, or in substantially the same manner, but at more frequent intervals, as provided by the City Council by resolution. The City Council may designate an official, including an official other than the County Tax Collector, or other agent, to collect and maintain records of the collection of the assessments, including a procedure other than through the property tax collection procedure prescribed in Subdivision 2. The City Council may authorize an additional assessment to pay the costs of collection, not to exceed the percentages or amounts set forth in Section 3.52.615, and an additional amount to cover the costs of registration, not to exceed the percentages and amounts set forth in Section 3.52.616. The City Council may authorize an additional assessment to pay for incidental expenses of the financing. The assessments and the interest on the assessments for each pay period are payable at the end of the pay period and are delinquent thereafter, and shall bear the same proportionate penalties and interest after delinquency as the assessment installments in the subject proceedings. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.677 Interest on unpaid assessments.

Interest on all unpaid assessments shall run from the date of the Bonds, and shall be computed for each interest pay period at the date determined pursuant to the terms of the Bond for that interest pay period. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.678 Variable interest rate on Bonds.

The City Council may, by resolution, specify that the interest rate on the Bonds may vary from time to time as determined by a Bond index or some other means prescribed in the resolution. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.679 Conversion of Bonds to fixed interest rate.

The City Council may, by resolution, specify terms and conditions under which the Bonds may be converted to a fixed interest rate. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.680 Repurchase of Bonds—Costs.

The City Council may, by resolution, specify terms and conditions under which the City agrees to repurchase the Bonds. The City Council may secure a letter of credit or other instrument to secure payment or repurchase of any Bonds, and the resulting costs, including costs of initially securing, maintaining or making any payments arising from the exercise of a letter of credit or other instrument, may be treated as incidental expenses. The City Council may engage a remarketing agent and an indexing agent, subject to terms and conditions agreed to by the City Council, and the resulting costs may be treated as incidental expenses. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.681 Notice of assessment—Unpaid assessments subject to variable interest rate.

The notice of assessment recorded with the office of the County Recorder of the County pursuant to Section 3114 of the Streets and Highways Code shall include the following statement:

"Notice is further given that unpaid assessments are subject to interest at a variable interest rate." (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.682 Place of payment.

The Bonds and interest shall be paid at the office of the Treasurer, or of another paying agent,

fiscal agent or trustee designated by the City Council. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.683 Redemption fund.

The Treasurer or designated paying agent shall keep a redemption fund designated by the name of the Bonds into which he or she shall place all sums received from the collection of the assessments made for the payment of the cost of the Improvements upon which the Bonds are issued and, subject to the provisions of Subdivision 2 and/or the resolution under which the Bonds are issued, of the interest and penalties thereon and from which fund he shall disburse and pay the Bonds and the interest due thereon. Alternatively, if the Treasurer collects the assessments, all such sums received may be forwarded to the paying agent designated by the City Council for paying Bonds and interest. Under no circumstances shall the Bonds or the interest thereon be paid out of any other fund. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.684 Bond register—Cancellation of paid Bonds.

The Treasurer or designated paying agent shall keep a register in his or her office showing the series, if any, number, date, amount, rate of interest, and holder of each Bond. The Treasurer or agent shall cancel each Bond which he or she pays. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.685 Resolution—Issuance—Maximum maturity date.

The City Council may, by resolution, borrow money in anticipation of the sale of Bonds which have been authorized pursuant to this Subdivision, but which have not been sold and delivered, issue negotiable Bond anticipation notes therefor, and renew the notes from time to time. The maximum maturity of any Bond anticipation note, including the renewals thereof, shall not exceed three (3) years from the date of delivery of the original notes. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.686 Source of principal and interest payments.

The principal and interest on the Bond anticipation notes may be paid from any money available for their payment. Any portion of the principal or interest which is due and payable shall be paid from the proceeds of the next sale of Bonds in anticipation of which the notes were issued. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.687 Purposes—Use of proceeds.

The proceeds of Bond anticipation notes issued pursuant to this Chapter may be used for any purpose for which the Bonds in anticipation of which the notes were issued may be used. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.688 Amount of issuance.

The Bond anticipation notes shall not be issued in any amount in excess of the aggregate amount of Bonds which the City Council has been authorized to issue, less the amount of any Bonds of the authorized issue which have been previously sold and less the amount of other Bond anticipation notes previously issued and still outstanding. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.689 Resolution—Call and redemption prior to maturity.

The City Council may provide, in its resolution authorizing the issuance of Bond anticipation notes, that the notes shall be subject to call and redemption prior to maturity, at the option of the City Council, at the price or prices which are fixed in the resolution, but not to exceed a premium of six percent (6%) of the par value of the notes subject to redemption. The resolution shall fix the method of giving notice of redemption to the holders of the notes to be redeemed and the price or prices at which the note shall be subject to redemption. Any notes that are subject to call and

redemption prior to maturity shall contain a recital to that effect on their face, and no note shall be subject to call or redemption prior to its fixed maturity date unless it contains that recital, unless otherwise consented to by the Owner of such note. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.690 Manner of issuance and sale.

The Bond anticipation notes may be issued in the same manner as the Bonds. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.691 Contents of notes and resolution.

The Bond anticipation notes and the resolution authorizing them may contain any provisions, conditions or limitations which a resolution of the City Council authorizing the issuance of Bonds may contain. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.692 Resolution—Remedy—Anticipated Bonds not sold at time or in amount specified—Default.

The City Council shall provide a remedy in its resolution authorizing the issuance of Bond anticipation notes if the anticipated Bonds cannot be sold at the time or in the amount specified in the resolution or if any default occurs with respect to the notes. Any remedy which is so provided shall limit the obligations of Owners within the area subject to assessment to the amount of the assessment authorized and levied, except that the City Council may enter into an agreement with any of the Owners within the district pledging some or all of the property of those Owners who are a party to the agreement as additional security for the notes. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.693 Advancement of Bond maturity—Payment.

By proceeding in accordance with the provisions this Chapter the Treasurer may advance the maturity of any Bond to the second day of March or September in any year and pay and cancel the same whenever there is sufficient surplus moneys in the redemption fund for its retirement. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.694 Notice of advanced maturity—Service or mailing.

Notice of advanced maturity shall be given in writing to the registered holder or Owner of the Bond by registered or certified mail or personal service, or in such other manner permitted by the resolution authorizing the issuance of the Bonds.

Service or mailing of the notice shall be made at least thirty (30) days before the date fixed for advanced maturity, unless otherwise waived by the Bond Owners. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.695 Surrender—Payment—Premium—Failure to surrender for payment.

If notice of advanced maturity is given, the Bond shall mature and become payable on the date fixed for maturity in the notice. The Treasurer shall set aside to the credit of the Owner of the Bond the amount of principal and accrued interest then due on the Bond together with the redemption premium and the Bond shall then be deemed to have matured and interest shall cease to accrue on the Bond. The amount so set aside shall on the date fixed for maturity in the notice and upon the surrender and cancellation of the Bond be paid to the holder or Owner of the Bond. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.696 Cost of notice of advanced maturity.

The costs of serving or publishing the notice of advanced maturity shall be paid from the redemption fund. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.697 Notice covering more than one Bond.

More than one (1) Bond may be covered in a single notice of advanced maturity. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.698 Tender of other Bonds for cancellation.

Prior to the surrender of any Bond or the setting aside of any funds, the Treasurer may waive and vacate any notice of advanced maturity upon being tendered for cancellation some other Bond or Bonds of an equivalent amount and, of a maturity not earlier than that noticed. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.699 Selection of Bonds for advanced maturity.

In selecting Bonds for retirement, the Treasurer shall follow the procedure set forth in Section 3.52.700. The decision of the Treasurer in selecting Bonds for retirement shall be conclusive in the absence of fraud. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.700 Manner of selecting Bonds for retirement.

The Treasurer shall select Bonds for retirement in accordance with the redemption provisions of the trust indenture or resolution executed in connection with the issuance of the Bonds. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.701 Alternative procedures.

Notwithstanding the foregoing provisions of this Subdivision, the City Council may, by resolution, establish alternative procedures for the advance retirement of the Bonds. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.702 Withholding payments—Report to City Council.

If it appears to the Treasurer that there is danger of an ultimate loss accruing to the Bondholders for any reason, he may either withhold payment on all matured Bonds and interest, or continue to make payment to be applied as provided in the resolution authorizing the issuance of the Bonds, and the Treasurer may report the facts to the City Council. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.703 Hearing—Date—Notice.

On receipt of any report of the Treasurer under Section 3.52.702, the City Council shall fix a date for hearing thereon. The City Clerk shall give notice of the hearing by posting for seven (7) days. At the hearing, the City Council shall determine whether in its judgment there will ultimately be insufficient money in the redemption fund to discharge the unpaid Bonds and interest. If it determines that in its judgment there will be no such shortage, it shall direct the Treasurer to pay matured Bonds and interest as presented, and as provided in the resolution authorizing the issuance of the Bonds, as long as there is available money in the redemption fund. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.704 Proportionate payments.

If the City Council determines that in its judgment there will be a shortage in the redemption fund, it shall direct the Treasurer to pay, on a date to be determined by the Treasurer, to the holders of all outstanding and unpaid Bonds such proportion thereof as the amount of funds on hand bears to the total amount of the unpaid principal of the Bonds and the interest which has accrued or will accrue thereon. Similar proportionate payments shall thereafter be made periodically, as determined by the Treasurer, as moneys come into the redemption fund. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.705 Payment of proportionate amounts—Interest—Premium—Notice to holders of unsurrendered Bonds.

Interest shall cease on payments made on account of principal from the date of payment, but interest shall continue to run on the unpaid principal at the rate specified in such Bonds until payment thereof be made. No premiums shall be paid on payments made in advance of the due date. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.706 Supplemental hearings.

The City Council may hold supplemental hearings on like notice and such other and supplemen-

tal orders may be made from time to time as may be equitable and proper. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.707 Temporary redemption fund deficiency—Priority for payment.

If a deficiency occurs in the redemption fund with which to pay past due Bonds, past due interest, or Bonds or interest which will become due during the current tax collecting year, but it does not appear to the Treasurer that there will be an ultimate loss to the Bondholders, he shall pay matured Bonds as presented and make interest payments when due, as long as there are available funds in the redemption fund, in accordance with the provisions of the trust indenture or resolution executed in connection with the issuance of the Bonds. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.708 Notice to holders of registered Bonds—Failure to present for payment.

When funds become available for the payment of any Bond which was not paid upon presentment, the Treasurer shall notify the registered Owner thereof by registered mail to present the Bond for payment. If the Bond is not presented for payment within ten (10) days after the mailing of the notice, interest shall cease to run on such Bond. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.709 Hearing on supplemental assessment.

If a deficiency remains in the redemption fund after one (1) year from the issuance of the Bonds, the City Council may require all persons interested to appear before it at a day, hour and place fixed by it for a hearing and to show cause why a supplemental assessment should not be made to pay for the cost and incidental expenses of the original Improvements done upon which the original assessments were made and upon which the Bonds were issued. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.710 Notice of hearing—Publication—Posting.

Notice of the hearing shall be given by publication, and shall also be posted by the City Clerk or Assessment Engineer in the same manner as provided by the law pursuant to which the Improvements were done for the posting of notices of the passage of the Resolution of Intention. The first publication of the notice and the posting shall be completed ten (10) days before the time fixed for the hearing. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.711 Hearing—Levy of supplemental assessment.

At the time set for the hearing, the City Council shall proceed to hear any person appearing and may determine whether or not such deficiency was due to the fact that the original assessment for such cost and Incidental Expenses was not apportioned equitably or in accordance with benefits. The hearing may be postponed from time to time. If it appears to the City Council that the amount apportioned to any parcel was less than the amount which such parcel shall equitably bear according to the benefit which it received from the Improvement, the City Council may levy a supplemental assessment apportioning to such parcel the additional sums which it should equitably bear according to such benefits. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.712 Costs of notice and supplemental assessment—Recordation of order levying assessment—Lien—Collection.

The cost of the publication and posting of the notice and of making the supplemental assessment may be included in the supplemental assessment. A copy of the order levying the supplemental assessment shall be recorded in the office of the Assessment Engineer and from and after such recording, the sum therein levied on any parcel shall be and constitute a lien thereon and thereafter bear interest at the rate specified in the Bonds. The several amounts levied by the supplemental

assessment shall be extended on the next succeeding tax rolls to be delivered to the Tax Collector and shall be collected in the manner provided for the collection of installments of the original assessments. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.713 Collection in annual installments—Advance payment of full amount.

The City Council may provide in its order levying the supplemental assessment that the supplemental assessments may be collected in annual installments during the remaining term of years during which the Bonds run. However, any Owner may pay the whole of the supplemental assessment subsequent to the order of the City Council and before the amount has been extended on the tax roll, whereupon interest shall cease on such assessment. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.714 Disposition of proceeds.

All money collected on the supplemental assessment shall be paid into the redemption fund and be applied to the payment of the costs of publishing and posting the notice of hearing and of making the supplemental assessment and then to the payment of the Bonds and interest thereon. After satisfaction of the Bonds, repayment, if possible, of all funds collected on the supplemental assessment shall be made to those persons paying the same out of recoveries had through the collection of the delinquent installments of the assessments upon which the Bonds were originally issued and of the interest and penalties thereon, and then out of any surplus remaining in the redemption fund after repayment to the City of any advances made by the City and any costs incurred by it under Subdivision 2 and Subdivision 3. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.715 Disposition of surplus.

If there is a surplus remaining in the redemption fund after payment of all Bonds and the interest thereon, that surplus shall first be applied to repayment to the City of any advances made by the City, and also of any costs incurred by it under Subdivision 2 and Subdivision 3. The remainder shall be repaid in accordance with the provisions of Section 3.52.714 to persons paying supplemental assessments, if any, and the balance may be proportionately credited upon the final installments due upon the assessments securing the Bonds and repaid to those persons whose assessments have been previously paid or may be transferred to the General Fund of the City. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.716 Creation—Amount.

In any proceedings leading to the issuance of Bonds pursuant to this Subdivision, the City Council may include, as an incidental expense of the proceedings, an amount to create a special reserve fund for the Bonds. The amount so provided shall not exceed ten percent (10%) of the total amount of assessments to be levied under the proceedings. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.717 Cash or advance payment of assessment—Reduction of assessment levied on parcel—Ratio.

Where a special reserve fund is created for a Bond issue, the assessment levied on any parcel for the payment of the Bond issue shall be reduced upon the payment, in whole or in part, of the assessment pursuant to provisions for either: (1) cash payments of assessments prior to the issuance of the Bonds, or (2) advance payment of assessments following the issuance of the Bonds.

The proportional reduction on the assessment in the case of clause (1) above, shall equal the ratio of the total amount initially provided for the special reserve fund to the total amount originally assessed in the proceedings for the Bond issue, and in the case of clause (2) above, shall equal the ratio of the total amount in the special reserve fund, if any, at the time of advance payment of the assessment to the total amount of the Bonds outstanding at the time of advance payment of the assessment. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.718 Transfer of sale proceeds to fund—Trust fund.

Upon receipt of the Bond sale proceeds, the amount so provided for the special reserve fund pursuant to Section 3.52.716 shall be transferred to the fund.

The special reserve fund shall be identified by the name of the proceedings under which the Bonds are issued and shall constitute a trust fund for the benefit of the Bondholders, subject to and to be administered in accordance with the provisions of this Chapter. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.719 Availability of fund for transfer to redemption fund—Reimbursement from proceeds of redemption or sale.

The money in the special reserve fund shall be available for transfer into the redemption fund for the Bonds pursuant to Subdivision 2. The amount so advanced shall be reimbursed from the proceeds of redemption or sale of the parcel for which payment of delinquent installments was made from the special reserve fund, but only if the special reserve fund is then maintained with respect to the Bonds. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.720 Payment of assessment—Transfer to redemption fund of amount equal to assessment reduction.

Whenever an assessment is paid off following the issuance of Bonds, there shall be transferred from the special reserve fund to the redemption fund an amount equal to the reduction, if any, in the assessment determined pursuant to Section 3.52.717. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.721 Adequacy of fund to retire Bonds—Discontinuance of principal and interest collection—Liquidation—Disposition of excess.

Whenever the balance in the special reserve fund is sufficient to retire all remaining outstanding Bonds in the issue, whether by advance retirement or otherwise, collection of the principal and interest on the assessments shall be discontinued and the special reserve fund shall be liquidated in retirement of the Bonds.

In the event that the balance in the fund at the time of liquidation exceeds the amount required to retire all outstanding Bonds in the issue, the excess shall be apportioned to each parcel upon which the individual assessment remained unpaid at the time the balance in the reserve fund was sufficient to retire all outstanding Bonds in the issue. The payments shall be made in cash to the respective Owners of the parcels except that, if the excess is not greater than one thousand dollars ($1,000.00), the excess may be transferred to the General Fund of the City. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.722 Temporary investments.

Money in the special reserve fund may be temporarily invested in any authorized investments pursuant to Article 1 (commencing with Section 53600) of Chapter 4 of Part 1 of Division 2 of Title 5 of the Government Code, or in any authorized investments pursuant to law. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.723 Use of fund—Assessment credit—Advance Bond retirement.

Notwithstanding any other provision in this Chapter, for the purpose of providing for reduction of the amount of money in the special reserve fund during the term of the Bonds, the City Council may, by resolution adopted prior to the issuance of Bonds under this Subdivision, provide that money in the special reserve fund, including investment income, shall be used, in the amounts and at the times as the City Council may determine, for any or all of the following:

A. Credit upon the assessment in the manner provided in Section 3.52.626.

B. Transfer to the redemption fund for advance retirement of the Bonds pursuant to this Subdivision.

C. Transfer to the improvement fund for payment of the costs of the construction of the Improvements.

D. Use for costs of administering the Assessment District, including foreclosure costs, costs of litigation, other attorney fees and financial advisor fees and expenses.

The resolution may specify the terms and conditions, as the City Council may determine to be reasonable, with respect to its authorization of any or all of the uses. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.724 Errors in computation of amount due.

No Bonds assessment or installment thereof or of the interest or penalties thereon, or certificate of sale or deed, shall be held invalid for any error in the computation of the proper amount due on the same, if the error is found to be comparatively negligible, or is found to be in favor of the Owner of the real property affected thereby. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.725 Examination by Superintendent of Banks—Certification of legal investment.

Upon the application of the City Council or of any holder or other interested party, the Superintendent of Banks shall examine the regularity of the issuance of Bonds under this Subdivision and the sufficiency of the security provided for the payment thereof and, if satisfied therewith, he or she may certify the same as suitable for investment by savings banks and trustees whereupon the Bonds may be used for investment of savings deposits and trust funds. The cost of any such examination may, on approval of the City Council, be paid out of any surplus money in the redemption fund not required for the payment of the interest or principal of the Bonds. (Ord. C-7480 § 1, 1997: Ord. C-6723 § 1 (part), 1990)

3.52.726 Judicial sale procedures.

Notwithstanding any provisions set forth in this Chapter, the judicial sale procedures set forth in California Streets and Highways Code Section 8832 shall govern judicial actions commenced to enforce the provisions of this Chapter. (Ord. C-7632 § 1, 1999)

CHAPTER 3.56 REAL PROPERTY TRANSFER TAX*

3.56.010 Title.

The provisions of this Chapter shall be known as the real property transfer tax ordinance of the City. It is adopted pursuant to the authority contained in Part 6.7 (commencing with Section 11901) of Division 2 of the Revenue and Taxation Code of the State. (Prior code § 2470)

3.56.020 Imposed—Rate.

There is imposed on each deed, instrument or writing by which any lands, tenements, or other realty sold within the City is granted, assigned, transferred or otherwise conveyed to, or vested in, the purchaser or purchasers, or any other person or persons, by his or their direction, when the consideration or value of the interest or property conveyed (exclusive of the value of any lien or encumbrance remaining thereon at the time of sale) exceeds one hundred dollars ($100.00), a tax at the rate of twenty-seven and one-half cents for each five hundred dollars ($500.00) or fractional part thereof. (Prior code § 2471)

3.56.030 Administration.

The County Recorder shall administer this Chapter in conformity with provisions of Part 6.7 of Division 2 of the Revenue and Taxation Code and the provisions of any County ordinance adopted pursuant thereto. (Prior code § 2478)

3.56.040 Payment required.

Any tax imposed pursuant to Section 3.52.020 shall be paid by any person who makes, signs or issues any document or instrument subject to the

---

***Editor's note**—The operative date of this Chapter is the operative date of any ordinance adopted by the county, pursuant to Rev. and T. C. § 11901 et seq., or January 1, 1968, whichever is later.

State law reference—Provisions on the real property transfer tax, Rev. and T. C. § 11901 et seq.

tax, or for whose use or benefit the same is made, signed or issued. (Prior code § 2472)

3.56.050 Exemption—Governmental entities.

The United States or any agency or instrumentality thereof, any State or territory, or political subdivision thereof, or the District of Columbia shall not be liable for any tax imposed pursuant to this Chapter with respect to any deed, instrument, or writing to which it is a party, but the tax may be collected by assessment from any other party liable therefor. (Prior code § 2474)

3.56.060 Exemption—Security instruments.

Any tax imposed pursuant to this Chapter shall not apply to any instrument in writing given to secure a debt. (Prior code § 2473)

3.56.070 Exemption—Partnership transactions.

A. In the case of any realty held by a partnership, no levy shall be imposed pursuant to this Chapter by reason of any transfer of an interest in a partnership or otherwise, if:

1. Such partnership (or another partnership) is considered a continuing partnership within the meaning of Section 708 of the Internal Revenue Code of 1954; and

2. Such continuing partnership continues to hold the realty concerned.

B. If there is a termination of any partnership within the meaning of Section 708 of the Internal Revenue Code of 1954, for purposes of this Chapter, such partnership shall be treated as having executed an instrument whereby there was conveyed, for fair market value (exclusive of the value of any lien or encumbrance remaining thereon), all realty held by such partnership at the time of such termination.

C. Not more than one (1) tax shall be imposed pursuant to this Chapter by reason of a termination described in Subsection B, and any transfer pursuant thereto, with respect to the realty held by such partnership at the time of such termination. (Prior code § 2477)

3.56.080 Exemption—Plans of reorganization or adjustment.

A. Any tax imposed pursuant to this Chapter shall not apply to the making, delivering or filing of conveyances to make effective any plan of reorganization or adjustment:

1. Confirmed under the Federal Bankruptcy Act, as amended;

2. Approved in an equity receivership proceeding in a court involving a railroad corporation, as defined in subdivision (m) of Section 205 of Title 11 of the United States Code, as amended;

3. Approved in any equity receivership proceeding in a court involving a corporation, as defined in subdivision (3) of Section 506 of Title 11 of the United States Code, as amended; or

4. Whereby a mere change in identity, form or place of organization is effected.

B. Subsection B of this Section shall only apply if the making, delivery or filing of instruments of transfer or conveyances occurs within five (5) years from the date of such confirmation, approval or change. (Prior code § 2475)

3.56.090 Exemption—Securities and Exchange Commission.

Any tax imposed pursuant to this Chapter shall not apply to the making or delivery of conveyances to make effective any order of the Securities and Exchange Commission, as defined in subdivision (a) of Section 1083 of the Internal Revenue Code of 1954; but only if:

A. The order of the Securities and Exchange Commission in obedience to which such conveyance is made recites that such conveyance is necessary or appropriate to effectuate the provisions of Section 79k of Title 15 of the United States Code, relating to the Public Utility Holding Company Act of 1935;

B. Such order specifies the property which is ordered to be conveyed; and

C. Such conveyance is made in obedience to such order. (Prior code § 2476)

3.56.100 Refunds.

Claims for refund of taxes imposed pursuant to this Chapter shall be governed by provisions of

Chapter 5 (commencing with Section 5096) of Part 9 of Division 1 of the Revenue and Taxation Code of the State. (Prior code § 2479)

CHAPTER 3.60 SALES AND USE TAX*

3.60.010 Title.

This Chapter shall be known as the uniform local sales and use tax provisions of the Long Beach Municipal Code. (Prior code § 2411)

3.60.020 Purpose.

The Council declares that this Chapter is adopted to achieve the following, among other, purposes, and directs that the provisions hereof be interpreted in order to accomplish those purposes:

A. To adopt sales and use tax provisions which comply with the requirements and limitations contained in Part 1.5 of Division 2 of the Revenue and Taxation Code of the State;

B. To adopt sales and use tax provisions which incorporate provisions identical to those of the Sales and Use Tax Law of the State insofar as those provisions are not inconsistent with the requirements and limitations contained in Part 1.5 of Division 2 of the Revenue and Taxation Code;

C. To adopt sales and use tax provisions which impose a one percent (1%) tax and provide a measure therefor that can be administered and collected by the State Board of Equalization in a manner that adapts itself as fully as practical to, and requires the least possible deviation from, the existing statutory and administrative procedures followed by the State Board of Equalization in administering and collecting the California State Sales and Use Taxes;

D. To adopt sales and use tax provisions which can be administered in a manner that will, to the degree possible consistent with the provisions of Part 1.5 of Division 2 of the Revenue and Taxation Code, minimize the cost of collecting City sales and use taxes and at the same time minimize the burden of record keeping upon persons subject to taxation under the provisions of this Chapter. (Prior code § 2412)

3.60.030 Amendments to statutes adopted.

All amendments of the Revenue and Taxation Code enacted subsequent to the effective date of this Chapter which relate to the sales and use tax and which are not inconsistent with Part 1.5 of Division 2 of the Revenue and Taxation Code shall automatically become a part of this Chapter. (Prior code § 2416)

3.60.040 State agreement—Operative date conditions.

This Chapter shall become operative on April 1, 1956, and prior thereto this City shall contract with the State Board of Equalization to perform all functions incident to the administration and operation of this Chapter; provided, that if this City has not contracted with the State Board of Equalization, as above set forth, prior to April 1, 1956, this Chapter shall not be operative until the first day of the first calendar quarter following the execution of such a contract by the City and by the State Board of Equalization; provided further, that this Chapter shall not become operative prior to the operative date of the uniform local sales and use tax ordinance of the County. (Prior code § 2413)

3.60.050 Sales tax.

A. For the privilege of selling tangible personal property at retail a tax is imposed upon all retailers in the City at the rate of one percent (1%) of the gross receipts of the retailer from the sale of all tangible personal property sold at retail in the City on and after the operative date of this Chapter.

For the purposes of this Chapter all retail sales are consummated at the place of business of the retailer unless the tangible personal property sold is delivered by the retailer or his agent to an out-of-state destination or to a common carrier for delivery to an out-of-state destination. The gross

*State law references—Provisions authorizing cities to adopt codes and County ordinances by reference, Gov. C. §§ 50022.1—50022.10; provisions authorizing cities to levy sales and use taxes, Gov. C. § 37101; provisions regarding uniform local sales and use taxes, Rev. and T. C. § 7200 et seq.

receipts from such sales shall include delivery charges, when such charges are subject to the State sales and use tax, regardless of the place to which delivery is made. In the event a retailer has no permanent place of business in the State or has more than one (1) place of business, the place or places at which the retail sales are consummated shall be determined under rules and regulations to be prescribed and adopted by the State Board of Equalization.

B. Except as provided in this Section, and except insofar as they are inconsistent with the provisions of Part 1.5 of Division 2 of the Revenue and Taxation Code, all of the provisions of Part 1 of Division 2 of the Code, as amended and in force and effect on April 1, 1956, applicable to sales taxes are adopted and made a part of this Section as though fully set forth in this Section.

1. Wherever, and to the extent that, in Part 1 of Division 2 of the Revenue and Taxation Code the State is named or referred to as the taxing agency, the City shall be substituted therefor. Nothing in this Chapter shall be deemed to require the substitution of the name of the City for the word "State" when that word is used as part of the title of the State Controller, the State Treasurer, the State Board of Control, the State Board of Equalization, or the name of the State Treasury, or of the Constitution of the State of California; nor shall the name of the City be substituted for that of the State in any section when the result of that substitution would require action to be taken by or against the City or any agency thereof, rather than by or against the State Board of Equalization, in performing the functions incident to the administration or operation of this Chapter; and neither shall the substitution be deemed to have been made in those sections, including, but not necessarily limited to, sections referring to the exterior boundaries of the State, where the result of the substitution would be to provide an exemption from this tax with respect to certain gross receipts which would not otherwise be exempt from this tax while those gross receipts remain subject to tax by the State under the provisions of Part 1 of Division 2 of the Revenue and Taxation Code; nor to impose this tax with respect to certain gross receipts which would not be subject to tax by the State under the provisions of that code; and, in addition, the name of the City shall not be substituted for that of the State in Sections 6701, 6702 (except in the last sentence thereof), 6711, 6715, 6737, 6797 and 6828 of the Revenue and Taxation Code as adopted.

2. If a seller's permit has been issued to a retailer under Section 6067 of the Revenue and Taxation Code, an additional seller's permit shall not be required by reason of this Section.

3. There shall be excluded from the gross receipts by which the tax is measured:

a. The amount of any sales or use tax imposed by the State upon a retailer or consumer;

b. Receipts from sales to operators of common carrier and waterborne vessels of property to be used or consumed in the operation of such common carriers or waterborne vessels principally outside of this City.

4. There shall be excluded from the gross receipts by which the tax is measured:

a. The amount of any sales or use tax imposed by the State upon a retailer or consumer;

b. The gross receipts from the sale of tangible personal property to operators of waterborne vessels to be used or consumed principally outside the City in which the sale is made and directly and exclusively in the carriage of persons or property in such vessels for commercial purposes;

c. The gross receipts from the sale of tangible personal property to operators of aircraft to be used or consumed principally outside the City in which the sale is made and directly and exclusively in the use of such aircraft as common carriers of persons or property under the authority of the laws of this State, the United States, or any foreign government. (Prior code § 2414)

3.60.060 Use tax.

A. An excise tax is imposed on the storage, use or other consumption in the City of tangible personal property purchased from any retailer on or after the operative date of this Chapter, for storage, use or other consumption in the City at

the rate of one percent (1%) of the sales price of the property. The sales price shall include delivery charges when such charges are subject to State sales or use tax regardless of the place to which delivery is made.

B. Except as provided in this Section, and except insofar as they are inconsistent with the provisions of Part 1.5 of Division 2 of the Revenue and Taxation Code, all of the provisions of Part 1 of Division 2 of the Code, as amended and in force and effect on April 1, 1956, applicable to use taxes, are adopted and made a part of this Section as though fully set forth in this Section.

1. Wherever, and to the extent that, in Part 1 of Division 2 of the Revenue and Taxation Code the state is named or referred to as the taxing agency, the name of this City shall be substituted therefor. Nothing in this Chapter shall be deemed to require the substitution of the name of this City for the word "State" when that word is used as part of the title of the State Controller, the State Treasurer, the State Board of Control, the State Board of Equalization, or the name of the State Treasury, or of the Constitution of the State; nor shall the name of the City be substituted for that of the State in any section when the result of that substitution would require action to be taken by or against the City or any agency thereof rather than by or against the State Board of Equalization, in performing the functions incident to the administration or operation of this Chapter; and neither shall the substitution be deemed to have been made in those sections, including but not necessarily limited to, sections referring to the exterior boundaries of the State, where the result of the substitution would be to provide an exemption from this tax with respect to certain storage, use or other consumption of tangible personal property which would not otherwise be exempt from this tax while such storage, use or other consumption remains subject to tax by the State under the provisions of Part 1 of Division 2 of the Revenue and Taxation Code, or to impose this tax with respect to certain storage, use or other consumption of tangible personal property which would not be subject to tax by the State under the provisions of that code; and in addition, the name of the City shall not be substituted for that of the State in Sections 6701, 6702 (except in the last sentence thereof), 6711, 6715, 6737, 6797 and 6828 of the Revenue and Taxation Code as adopted, and the name of the City shall not be substituted for the word "State" in the phrase "retailer engaged in business in this State" in Section 6203 nor in the definition of that phrase in Section 6203.

2. There shall be exempt from the tax due under this Section:

a. The amount of any sales or use tax imposed by the State upon a retailer or consumer;

b. The storage, use or other consumption of tangible personal property, the gross receipts from the sale of which has been subject to sales tax under a sales and use tax ordinance enacted in accordance with Part 1.5 of Division 2 of the Revenue and Taxation Code by any City and County, County, or City in this State;

c. The storage or use of tangible personal property in the transportation or transmission of persons, property or communications, or in the generation, transmission or distribution of electricity or in the manufacture, transmission or distribution of gas in intrastate, interstate or foreign commerce by public utilities which are regulated by the Public Utilities Commission of the State;

d. The use or consumption of property purchased by operators of common carrier and waterborne vessels to be used or consumed in the operation of such common carriers or waterborne vessels principally outside the City.

3. There shall be exempt from the tax due under this Section:

a. The amount of any sales or use tax imposed by the State upon a retailer or consumer;

b. The storage, use or other consumption of tangible personal property, the gross receipts from the sale of which has been subject to sales tax under a sales and use tax ordinance enacted in accordance with Part 1.5 of Division 2 of the Revenue and Taxation Code by any City and county, county or City in this State;

c. The storage, use, or other consumption of tangible personal property purchased by opera-

tors of waterborne vessels and used or consumed by such operators directly and exclusively in the carriage of persons or property in such vessels for commercial purposes;

d. In addition to the exemptions provided in Sections 6366 and 6366.1 of the Revenue and Taxation Code, the storage, use or other consumption of tangible personal property purchased by operators of aircraft and used or consumed by such operators directly and exclusively in the use of such aircraft as common carriers of persons or property for hire or compensation under a certificate of public convenience and necessity issued pursuant to the laws of this State, the United States, or any foreign government. (Prior code § 2415)

3.60.070 Operative date of exemptions.

A. Subsections 3.60.050.B.4 and 3.60.060.B.3 shall become operative on January 1st of the year following the year in which the State Board of Equalization adopts an assessment ratio for State-assessed property which is identical to the ratio which is required for local assessments by Section 401 of the Revenue and Taxation Code, at which time Subsections 3.56.050.B.3 and 3.56.060.B.2 shall become inoperative.

B. In the event that Subsections 3.60.050.B.4 and 3.60.060.B.3 become operative and the State Board of Equalization subsequently adopts an assessment ratio for State-assessed property which is higher than the ratio which is required for local assessments by Section 401 of the Revenue and Taxation Code, Subsections 3.60.050.B.3 and 3.60.060.B.2 shall become operative on the first day of the month following the month in which such higher ratio is adopted, at which time Subsections 3.60.050.B.4 and 3.60.060.B.3 shall become inoperative until the first day of the month following the month in which the Board again adopts an assessment ratio for State-assessed property which is identical to the ratio required by local assessments by Section 401 of the Revenue and Taxation Code, at which time Subsections 3.60.050.B.4 and 3.60.060.B.3 shall again become operative and Subsections 3.60.050.B.3 and 3.60.060.B.2 shall become inoperative. (Prior code § 2416.1)

3.60.080 Existing sales and use tax suspended.

At the time this Chapter goes into operation, the provisions of Ordinance No. C-3541, commonly referred to as the sales and use tax ordinance, shall be suspended and shall not again be of any force or effect until and unless for any reason the State Board of Equalization ceases to perform the functions incident to the administration and operation of the sales and use tax imposed by this Chapter; provided, however, that if for any reason it is determined that the City is without power to adopt the provisions as contained in this Chapter, or that the State Board of Equalization is without power to perform the functions incident to the administration and operation of the taxes imposed by this Chapter, the provisions of Ordinance No. C-3541 shall not be deemed to have been suspended, but shall be deemed to have been in full force and effect at the rate of one percent (1%) continuously from and after April 1, 1956. Upon the ceasing of the State Board of Equalization to perform the functions incident to the administration and operation of the taxes imposed by this Chapter, the provisions of Ordinance No. C-3541 shall again be in full force and effect at the rate of one percent (1%). Nothing in this Chapter shall be construed as relieving any person of the obligation to pay to the City any sales or use tax accrued and owing by reason of the provisions of Ordinance No. C-3541 in force and effect prior to and including March 31, 1956. (Prior code § 2420.1)

3.60.090 Enjoining collection prohibited.

No injunction or writ of mandate or other legal or equitable process shall issue in any suit, action or proceeding in any court against the State or this City, or against any officer of the State or this City, to prevent or enjoin the collection under this Chapter, or Part 1.5 of division 2 of the Revenue and Taxation Code, of any tax or any

amount of tax required to be collected. (Prior code § 2420)

3.60.095 Credit.

Every retailer subject to the sales or use tax imposed pursuant to Ordinance No. R.A. 1-93 of the Redevelopment Agency of the City shall receive a credit against his or her obligation to pay the tax imposed pursuant to Sections 3.60.050 or 3.60.060 in an amount equal to the sales or use tax due to the Redevelopment Agency of the City pursuant to said ordinance. (Ord. C-7162 § 1, 1993)

CHAPTER 3.62 TRANSACTIONS AND USE TAX

3.62.010 Purpose.

This ordinance is adopted to achieve the following, among other purposes, and directs that the provisions hereof be interpreted in order to accomplish those purposes:

A. To impose a retail transactions and use tax in accordance with the provisions of Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code and Section 7285.9 of Part 1.7 of Division 2 which authorizes the City to adopt this tax ordinance which shall be operative if a majority of the electors voting on the measure vote to approve the imposition of the tax at an election called for that purpose.

B. To adopt a retail transactions and use tax ordinance that incorporates provisions identical to those of the Sales and Use Tax Law of the State of California insofar as those provisions are not inconsistent with the requirements and limitations contained in Part 1.6 of Division 2 of the Revenue and Taxation Code.

C. To adopt a retail transactions and use tax ordinance that imposes a tax and provides a measure therefore that can be administered and collected by the California Department of Tax and Fee Administration in a manner that adapts itself as fully as practicable to, and requires the least possible deviation from, the existing statutory and administrative procedures followed by the California Department of Tax and Fee Administration in administering and collecting the California State Sales and Use Taxes.

D. To adopt a retail transactions and use tax ordinance that can be administered in a manner that will be, to the greatest degree possible, consistent with the provisions of Part 1.6 of Division 2 of the Revenue and Taxation Code, minimize the cost of collecting the transactions and use taxes, and at the same time, minimize the burden of record keeping upon persons subject to taxation under the provisions of this ordinance. (Measure A, Att. 1, 2020; Measure A, Att. 1, 2016)

3.62.020 Contract With State.

Prior to the operative date, the City shall contract with the California Department of Tax and Fee Administration to perform all functions incident to the administration and operation of this transactions and use tax ordinance; provided, that if the City shall not have contracted with the California Department of Tax and Fee Administration prior to the operative date, it shall nevertheless so contract and in such a case the operative date shall be the first day of the first calendar quarter following the execution of such a contract. (Measure A, Att. 1, 2020; Measure A, Att. 1, 2016)

3.62.030 Transactions Tax Rate.

For the privilege of selling tangible personal property at retail, a tax is hereby imposed upon all retailers in the incorporated territory of the City at the following rates:

A. One cent (1%) of the gross receipts of any retailer from the sale of all tangible personal property sold at retail in said territory on and after the operative date of Measure "A" (January 1, 2017) through December 31, 2022.

B. Three-quarters cent (¾%) of the gross receipts of any retailer from the sale of all tangible personal property sold at retail in said territory on or after January 1, 2023 through September 30, 2027.

C. One cent (1%) of the gross receipts of any retailer from the sale of all tangible personal prop-

erty sold at retail in said territory on or after October 1, 2027 (the sunset date for Los Angeles County Measure "H"). (ORD-26-0001 § 2, 2026; ORD-24-0027 § 1, 2024; Measure A, Att. 1, 2020; Measure A, Att. 1, 2016)

3.62.040 Place of Sale.

For the purposes of this ordinance, all retail sales are consummated at the place of business of the retailer unless the tangible personal property sold is delivered by the retailer or his agent to an out-of-state destination or to a common carrier for delivery to an out-of-state destination. The gross receipts from such sales shall include delivery charges, when such charges are subject to the state sales and use tax, regardless of the place to which delivery is made. In the event a retailer has no permanent place of business in the State or has more than one place of business, the place or places at which the retail sales are consummated shall be determined under rules and regulations to be prescribed and adopted by the California Department of Tax and Fee Administration. (Measure A, Att. 1, 2020; Measure A, Att. 1, 2016)

3.62.050 Use Tax Rate.

An excise tax is hereby imposed on the storage, use or other consumption in the City of tangible personal property purchased from any retailer on and after the operative date of Measure "A" for storage, use or other consumption in said territory at the following rates:

A. One cent (1%) of the sales price of the property on and after the operative date of Measure "A" (January 1, 2017) through December 31, 2022.

B. Three-quarters cent (¾%) of the sales price of the property on or after January 1, 2023 through September 30, 2027.

C. One cent (1%) of the sales price of the property on or after October 1, 2027 (the sunset date for Los Angeles County Measure "H").

The sales price shall include delivery charges when such charges are subject to state sales or use tax regardless of the place to which delivery is made. (ORD-26-0001 § 2, 2026; ORD-24-0027 § 2, 2024; Measure A, Att. 1, 2020; Measure A, Att. 1, 2016)

3.62.060 Adoption of Provisions of State Law.

Except as otherwise provided in this ordinance and except insofar as they are inconsistent with the provisions of Part 1.6 of Division 2 of the Revenue and Taxation Code, all of the provisions of Part 1 (commencing with Section 6001) of Division 2 of the Revenue and Taxation Code are hereby adopted and made a part of this ordinance as though fully set forth herein. (Measure A, Att. 1, 2020; Measure A, Att. 1, 2016)

3.62.070 Limitations on Adoption of State Law and Collection of Use Taxes.

In adopting the provisions of Part 1 of Division 2 of the Revenue and Taxation Code:

A. Wherever the State of California is named or referred to as the taxing agency, the name of this City shall be substituted therefor. However, the substitution shall not be made when:

1. The word "State" is used as a part of the title of the State Controller, State Treasurer, State Board of Control, California Department of Tax and Fee Administration, State Treasury, or the Constitution of the State of California;

2. The result of that substitution would require action to be taken by or against this City or any agency, officer, or employee thereof rather than by or against the California Department of Tax and Fee Administration, in performing the functions incident to the administration or operation of this Ordinance.

3. In those sections, including, but not necessarily limited to sections referring to the exterior boundaries of the State of California, where the result of the substitution would be to:

a. Provide an exemption from this tax with respect to certain sales, storage, use or other consumption of tangible personal property which would not otherwise be exempt from this tax while such sales, storage, use or other consumption re-

main subject to tax by the State under the provisions of Part 1 of Division 2 of the Revenue and Taxation Code, or;

b. Impose this tax with respect to certain sales, storage, use or other consumption of tangible personal property which would not be subject to tax by the state under the said provision of that code.

4. In Sections 6701, 6702 (except in the last sentence thereof), 6711, 6715, 6737, 6797 or 6828 of the Revenue and Taxation Code.

B. The word "City" shall be substituted for the word "State" in the phrase "retailer engaged in business in this State" in Section 6203 and in the definition of that phrase in Section 6203. (Measure A, Att. 1, 2020; Measure A, Att. 1, 2016)

3.62.080 Permit not Required.

If a seller's permit has been issued to a retailer under Section 6067 of the Revenue and Taxation Code, an additional transactor's permit shall not be required by this ordinance. (Measure A, Att. 1, 2020; Measure A, Att. 1, 2016)

3.62.090 Exemptions and Exclusions.

A. There shall be excluded from the measure of the transactions tax and the use tax the amount of any sales tax or use tax imposed by the State of California or by any city, city and county, or county pursuant to the Bradley-Burns Uniform Local Sales and Use Tax Law or the amount of any state-administered transactions or use tax.

B. There are exempted from the computation of the amount of transactions tax the gross receipts from:

1. Sales of tangible personal property, other than fuel or petroleum products, to operators of aircraft to be used or consumed principally outside the county in which the sale is made and directly and exclusively in the use of such aircraft as common carriers of persons or property under the authority of the laws of this State, the United States, or any foreign government.

2. Sales of property to be used outside the City which is shipped to a point outside the City, pursuant to the contract of sale, by delivery to such point by the retailer or his agent, or by delivery by the retailer to a carrier for shipment to a consignee at such point. For the purposes of this paragraph, delivery to a point outside the City shall be satisfied:

a. With respect to vehicles (other than commercial vehicles) subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, and undocumented vessels registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code by registration to an out-of-City address and by a declaration under penalty of perjury, signed by the buyer, stating that such address is, in fact, his or her principal place of residence; and

b. With respect to commercial vehicles, by registration to a place of business out-of-City and declaration under penalty of perjury, signed by the buyer, that the vehicle will be operated from that address.

3. The sale of tangible personal property if the seller is obligated to furnish the property for a fixed price pursuant to a contract entered into prior to the operative date of this ordinance.

4. A lease of tangible personal property which is a continuing sale of such property, for any period of time for which the lessor is obligated to lease the property for an amount fixed by the lease prior to the operative date of this ordinance.

5. For the purposes of subparagraphs (3) and (4) of this subsection, the sale or lease of tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

C. There are exempted from the use tax imposed by this ordinance, the storage, use or other consumption in this City of tangible personal property:

1. The gross receipts from the sale of which have been subject to a transactions tax under any state-administered transactions and use tax ordinance.

2. Other than fuel or petroleum products purchased by operators of aircraft and used or consumed by such operators directly and exclusively in the use of such aircraft as common carriers of persons or property for hire or compensation under a certificate of public convenience and necessity issued pursuant to the laws of this State, the United States, or any foreign government. This exemption is in addition to the exemptions provided in Sections 6366 and 6366.1 of the Revenue and Taxation Code of the State of California.

3. If the purchaser is obligated to purchase the property for a fixed price pursuant to a contract entered into prior to the operative date of this ordinance.

4. If the possession of, or the exercise of any right or power over, the tangible personal property arises under a lease which is a continuing purchase of such property for any period of time for which the lessee is obligated to lease the property for an amount fixed by a lease prior to the operative date of this ordinance.

5. For the purposes of subparagraphs (3) and (4) of this subsection, storage, use, or other consumption, or possession of, or exercise of any right or power over, tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

6. Except as provided in subparagraph (7), a retailer engaged in business in the City shall not be required to collect use tax from the purchaser of tangible personal property, unless the retailer ships or delivers the property into the City or participates within the City in making the sale of the property, including, but not limited to, soliciting or receiving the order, either directly or indirectly, at a place of business of the retailer in the City or through any representative, agent, canvasser, solicitor, subsidiary, or person in the City under the authority of the retailer.

7. "A retailer engaged in business in the City" shall also include any retailer of any of the following: vehicles subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, or undocumented vessels registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code. That retailer shall be required to collect use tax from any purchaser who registers or licenses the vehicle, vessel, or aircraft at an address in the City.

D. Any person subject to use tax under this ordinance may credit against that tax any transactions tax or reimbursement for transactions tax paid to a district imposing, or retailer liable for a transactions tax pursuant to Part 1.6 of Division 2 of the Revenue and Taxation Code with respect to the sale to the person of the property the storage, use or other consumption of which is subject to the use tax. (Measure A, Att. 1, 2020; Measure A, Att. 1, 2016)

3.62.100 Amendments.

All amendments subsequent to the effective date of this ordinance to Part 1 of Division 2 of the Revenue and Taxation Code relating to sales and use taxes and which are not inconsistent with Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, and all amendments to Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, shall automatically become a part of this ordinance, provided however, that no such amendment shall operate so as to affect the rate of tax imposed by this ordinance.

The City Council, by majority vote of the full Council, may lower the rate of the retail transactions and use tax adopted by this Chapter to 0%. (Measure A, Att. 1, 2020; Measure A, Att. 1, 2016)

3.62.110 Enjoining Collection Forbidden.

No injunction or writ of mandate or other legal or equitable process shall issue in any suit, action or proceeding in any court against the State or the City, or against any officer of the State or the City, to prevent or enjoin the collection under this ordinance, or Part 1.6 of Division 2 of the

Revenue and Taxation Code, of any tax or any amount of tax required to be collected. (Measure A, Att. 1, 2020; Measure A, Att. 1, 2016)

3.62.120 Duration of Tax.

The tax imposed by this article shall continue until this ordinance is repealed. (Measure A, Att. 1, 2020; Measure A, Att. 1, 2016)

3.62.130 Citizens' Advisory Committee.

There is hereby established a five-member citizens' advisory committee, whose members shall be appointed by and serve at the pleasure of the City Council. The committee shall periodically review the City's use of revenues generated by this Tax and shall make recommendations to the City Council with regard to the Tax. (Measure A, Att. 1, 2020; Measure A, Att. 1, 2016)

3.62.140 Effect of Los Angeles County Measures "A" and "H" and of Future County Transactions and Use Tax Measures on this Ordinance.

When contracting with the California Department of Tax and Fee Administration pursuant to section 3.62.020 to administer the tax imposed by this ordinance, it shall be the City's intent, and any agreement shall ensure, that the combined rate limit specified in Revenue and Taxation Code section 7251.1 is not exceeded in the City of Long Beach. As such, the following terms shall apply:

A. Because Long Beach voters approved Measure "A" prior to Los Angeles County Measure "H", it is the intent of this ordinance to give full effect to the one cent (1%) tax already enacted under Measure "A" until January 1, 2023, when the one cent (1%) tax would reduce in rate under Measure "A's" terms. Measure "H" shall not have any effect on the City's ability to levy and collect the 1% rate until January 1, 2023 and Los Angeles County shall not levy nor collect any Measure "H" taxes within the territory of Long Beach until January 1, 2023.

B. From January 1, 2023 until October 1, 2027, the City of Long Beach shall levy and collect a three-quarter cent (¾%) Transactions and Use Tax and Los Angeles County may levy and collect the quarter-cent (¼%) Measure "H" tax within the territory of Long Beach until Measure "H" sunsets on October 1, 2027.

C. When Measure "H" sunsets on October 1, 2027, the City of Long Beach shall again be authorized to levy and collect the Transactions and Use Tax at the rate of one cent (1%).

D. In the event that Los Angeles County voters approve a future measure after the effective date of this ordinance that either extends Measure "H" or otherwise enacts a new Transactions and Use Tax that, when aggregated with Long Beach's transactions and use taxes under this ordinance, causes the combined rate limit set forth in Revenue and Taxation Code section 7152.1 to be exceeded, such future County measure shall not have any effect on the City's ability to levy and collect Transactions and Use taxes at the rates set forth herein. Unless State law is amended to increase the combined rate limit under Revenue and Taxation Code section 7251.1 or this ordinance is later repealed or amended to reduce its tax rates, Los Angeles County shall not levy nor collect any Transactions and Use Taxes within the territory of Long Beach which were approved by Los Angeles County voters after the effective date of this ordinance. (ORD-26-0001 § 2, 2026; ORD-24-0027 §§ 3—5, 2024; Measure A, Att. 1, 2020)

CHAPTER 3.64 TRANSIENT OCCUPANCY TAX*

3.64.010 Definitions.

The following terms, when used in this Chapter, shall for the purpose of this Chapter, have the following respective meanings except where the context clearly indicates a different meaning:

A. "Business license section" means the business license section, City Department of Financial Management.

***State law reference**—Provisions authorizing cities to impose a tax on transients who occupy room space within the City, Rev. and T. C. §§ 7280 and 7281.

B. "Guestroom" means any room or rooms or space or portion thereof in a "hotel", as defined in this Section, occupied, or intended, arranged or designed for occupancy.

C. "Hotel" means any apartment house, auto court, boarding house, bungalow court, club, hotel, inn, lodging house, motel, rooming house, camp, studio, dormitory, tourist home or other structure, private or public, or portion thereof, within the City offering or renting to transients for lodging, dwelling, or sleeping purposes, in guestrooms for compensation, and shall further include any trailer court, trailer spaces, or combinations of such spaces and trailers, including mobilehomes, timeshare units not occupied by the timeshare owner or a guest of the owner, and docked boats and ships, occupied or intended or designed for occupancy by transients for dwelling, lodging or sleeping purposes. It does not mean any convalescent home or facility, home for the aged, hospital, jail, military installation, fraternity or sorority house recognized and approved by a Long Beach educational institution, nor does it mean a structure operated exclusively by an association or corporation for religious, charitable or educational purpose or purposes, no part of the earnings of which association or corporation inures to the benefit of any private shareholder or individual.

D. "Occupancy" means the use or possession, or the right to the use or possession, of any guestroom or rooms or space or portion thereof in any hotel for lodging, dwelling, or sleeping purposes.

E. "Occupant" means any individual who, for a consideration, uses, possesses or has the right to use any guestroom.

F. "Operator" means the person who is either the proprietor of the hotel or any other person who has the right to rent rooms within the hotel, whether in the capacity of owner, lessee, licensee, mortgagee in possession, sublessee or any other capacity. The owner or proprietor who is primarily responsible for operation of the hotel shall be deemed to be the principal operator. If the principal operator performs or assigns its functions, in whole or in part, through a managing agent, a booking agent, a room seller or room reseller, or any other agent or contractee, including, but not limited to, online room sellers, online room resellers, and online travel agents, of any type or character other than an employee, those persons shall be deemed to be secondary operators.

A secondary operator shall be deemed an operator for purposes of this Chapter and shall have the same duties and liabilities as the principal operator, including, but not limited to, the collection and remittance of the full amount of the tax owed under the provisions of this Chapter to the City. A secondary operator may satisfy its obligations under the provisions of this Chapter by submitting the full amount of tax due under this Chapter, with credit for any taxes remitted to any other operator, either directly to the Director or through the principal operator. The principal operator may satisfy any potential liability it may have for taxes owed by a secondary operator by entering into a legally binding agreement with that secondary operator to remit the portion of the tax owed by the secondary operator directly to the City. Upon request, the principal operator shall provide the Director with copies of any such agreements.

Compliance with the provisions of this Chapter by either the principal operator or the secondary operator shall be deemed to require the payment and/or remittance of any amount other than the full amount of the tax owed by the transient.

G. "Person" means any individual, association, company, partnership, corporation, limited liability company, limited liability partnership, firm, joint venture, social club, fraternal club, organization, joint stock company, estate, trust, business trust, receiver, trustee, syndicate or any other group or combination of individuals acting as a unit.

H. "Permanent lodger" means any occupant who, as of a given date, has occupied or has had the right of occupancy of any guestroom in a hotel for at least thirty (30) consecutive days next preceding such date.

I. "Rent" means the consideration charged, whether or not received, for occupancy of room or space in a hotel, valued in money, whether received in money, or goods, labor, or otherwise, including all receipts, cash, credits, property or services of any kind or nature, without any deduction therefrom whatsoever, including, but not limited to, credit card charges. If the charge made by a hotel includes any charge and services in addition to that for occupancy, such as food, then such amount shall be distinctly set out and billed as separate items with the appropriate tax charged. Nothing in this definition shall be construed to mean that rent is charged directly or indirectly for the occupancy of room or space in a hotel when that room or space is provided to the occupant as a compliment from the operator and where no consideration is charged to or received from any other person.

J. "Return" means any tax return filed or required to be filed as provided in this Chapter.

K. "Tax Collector" means the Tax Collector of the City.

L. "Transient" means any occupant who, for a period of not more than thirty (30) consecutive days, either at his or her own expense or at the expense of another, obtains the right of occupancy of a guestroom, for which occupancy rent is charged.

For an individual to avoid being deemed a transient during a thirty (30) consecutive day period, the individual exercising occupancy rights in a hotel must, prior to occupancy, enter into a written agreement with the hotel operator. The written agreement shall obligate a person to pay rent for the individual's occupancy for a period of at least thirty-one (31) consecutive days. The minimum substance of such written agreement shall contain the guest's name, address, period of occupancy, rent and signature. If the written agreement requirements are satisfied, the individual exercising such occupancy rights shall not be considered a transient under this Chapter and, therefore, shall not be subject to the tax imposed pursuant to Sections 3.64.030 and 3.64.035. In the absence of the written agreement prior to the commencement of occupancy, the individual shall be deemed a transient and subject to the tax until the qualifying period (thirty (30) consecutive days) for nontransient status has been satisfied. On the thirty-first consecutive day, and on each consecutive day thereafter, the tax shall not apply. If the individual fails to stay for at least thirty-one (31) consecutive days, irrespective of the written agreement, then the tax shall be due.

Nothing in this definition or this Chapter shall be construed as prohibiting the operator from refunding or making a credit allowance to a person who has paid tax as required by this Chapter where it is established that the person was not a "transient" as defined herein or was exempt from the tax for any other reason, or had for any reason overpaid the tax.

In determining whether an individual is a transient, uninterrupted periods of time extending both prior and subsequent to the effective date of the ordinance codified herein may be considered.

M. "Director" means the Director of Financial Management or his or her designee.

N. "Imposition" or "imposed" means the determination that the transient occupancy tax is applicable to and levied upon the transient and attaches as a condition of occupancy or the right to the use or possession of any room or rooms or space or portion thereof in any hotel for dwelling, lodging or sleeping purposes.

O. "Tax" means the transient occupancy tax imposed in Sections 3.64.030 and 3.64.035 which shall include all penalties, interest or other fees, costs and charges, if applicable, for collection purposes. (ORD-05-0010 §§ 1—10, 2005; Ord. C-7770 §§ 1, 2, 2001; prior code § 2450)

3.64.020 Administration.

It shall be the duty of the business license section to administer the provisions of this Chapter. The City may prescribe, adopt and enforce

reasonable and necessary rules and regulations, forms, policies and procedures relating to the administration and enforcement of this Chapter, which shall be available at the business license office of the City. (ORD-05-0010 § 11, 2005: prior code § 2459)

3.64.030 Imposed.

Every transient shall pay a tax of six percent (6%) of the rent for his or her occupancy of a guestroom and the tax shall be collected by the operator from such transient at the time and in the manner provided in this Chapter. The tax is imposed for revenue purposes and is needed for the special advertising and promotion fund of the City. (Prior code § 2451)

3.64.035 General Purpose Tax imposed.

In addition to the tax imposed by Section 3.64.030, every transient shall pay a tax of seven percent (7%) of the rent for his or her occupancy of a guestroom, and the tax shall be collected and accounted for separately from the tax imposed by Section 3.64.030 by the operator from such transient at the time and in the manner provided in this Chapter. All the revenues collected from the tax imposed by this Section shall be deposited in the City's general purpose fund. (Measure B § 1, 2020; Ord. C-7121 § 1, 1993: Ord. C-7008 § 1, 1992: Ord. C-6393 § 1, 1987: Ord. C-6051 § 2, 1984)

3.64.040 Exemptions.

No tax shall be imposed under this Chapter upon:

A. Any person as to whom, or any occupancy as to which, it is beyond the power of the City to impose the tax provided in this Chapter;

B. Any federal or State of California officer or employee when on official government business, including employees of federal credit unions, and who provides proof that he or she is on official federal, State or federal credit union business;

Provided, however, that no exemption shall be granted under Subsections A or B of this Section except upon claim therefor made at the time rent is collected and under penalty of perjury, upon a form prescribed by the City business license section.

It shall be the duty of the operator to keep and maintain a written documentation in support of each exemption claimed for a period of five (5) years. (ORD-05-0010 § 12, 2005: prior code § 2451.1)

3.64.045 Credit.

Every transient subject to the transient occupancy tax imposed pursuant to Ordinance No. R.A. 1-90 of the Redevelopment Agency of the City, shall receive a credit against his or her obligation to pay the tax imposed pursuant to Section 3.64.030 in an amount equal to the transient occupancy tax due to the Redevelopment Agency of

the City pursuant to such ordinance. (Ord. C-6685 § 1, 1990)

3.64.050 Collection.

A. On and after November 1, 1972, every operator receiving any payment for rent with respect to which a tax is due under this Chapter shall at the same time collect from the transient, or from the person making such payment, the amount of the tax imposed by this Chapter. The amount of tax shall be separately stated from the amount of the rent charged, and each transient shall receive a receipt for payment from the operator.

B. No operator of a hotel shall advertise or state in any manner, whether directly or indirectly, that the tax or any part thereof will be assumed or absorbed by the operator, or that it will not be added to the rent, or that, if added, any part will be refunded except in the manner provided in this Chapter.

C. The tax required to be collected under this Chapter shall be deemed to be held in trust for the account of the City by the person or persons required to collect the tax for the account of the City until payment thereof is made to the City. Any such tax imposed and required to be collected by an operator which has not been paid to the City shall be deemed a debt owed by the operator to the City.

D. Any person owing money to the City under the provisions of this Chapter shall be liable to an action brought in the name of the City for the recovery of such amount. Any operator who undertakes legal or collection action to recover unpaid rent due from a transient shall include the amount of tax due from the transient in the amount sought to be recovered. (ORD-05-0010 § 13, 2005: prior code § 2452)

3.64.055 Refunds.

A. Where a tax has been collected based on rent for a period of thirty (30) days or less and the occupant subsequently completes thirty-one (31) consecutive days of occupancy, thereby qualifying as a permanent lodger, the operator shall return to such occupant an amount equivalent to the amount of the tax so collected either in cash or by crediting his or her account unless, however, the tax has been paid over to the business license section. In the latter case, the operator who collected the tax may within one (1) year after the date of the payment to the business license section, provided the operator has returned the equivalent amount of the tax to the permanent lodger or credited the lodger's account with that amount, either take credit for the amount so reimbursed on a subsequent return or file a claim for refund of the tax. Refund of the tax shall be made from the fund mentioned in Sections 3.64.035 and 3.64.100 in this Chapter in the same percentage.

B. Whenever the amount of tax has been overpaid, it shall be refunded or credited provided a claim is submitted in writing signed under penalty of perjury stating the specific grounds upon which the claim is founded and filed with the business license section upon forms furnished by the business license section within one (1) year of the date of payment to the City.

C. An operator may claim a refund or take as credit against taxes collected and remitted the amount overpaid, paid more than once or erroneously or illegally collected or received when it is established in a manner prescribed by the business license section that the individual from whom the tax has been collected was not a transient; provided, however, that neither a refund nor a credit shall be allowed unless the amount of the tax so collected has either been refunded to the transient or credited to rent subsequently payable by the transient to the operator.

D. A transient may obtain a refund of taxes overpaid or paid more than once or erroneously or illegally collected or received by the City by filing a claim in the manner provided in Subsection A of this Section, but only when the tax was paid by the transient directly to the business license section, or when the transient having paid the tax to the operator, establishes to the satisfaction of the business license section that the transient has been unable to obtain a refund from the operator who collected the tax.

E. No refund shall be paid under this Section unless the claimant establishes claimant's right to the refund by written records showing entitlement to the refund and unless claimant files the claim for refund within one (1) year after the date of payment of the tax to the City. Section 3.48.040 of this Title relating to the conditions of payment of refunds shall apply. (ORD-06-0011 §§ 2, 3, 2006; ORD-05-0010 § 14, 2005)

3.64.060 Credit cards.

The tax shall be computed on the total room rental, not exempt from taxation by this Chapter, without regard for finance charges or discounts paid to credit card companies. (Prior code § 2453.1)

3.64.070 Returns and remittances.

The operator collecting such tax shall prepare a return upon such forms and set forth therein such information as the business license section may prescribe and require, showing the amount of rent collected and the tax required to be collected and he or she shall sign the same and deliver it to the business license section together with a remittance of such tax. The returns and remittances shall be due on the tenth day of each month covering the amount of tax collected during the preceding month. (Prior code § 2453)

3.64.080 Records.

A. It shall be the duty of every operator liable for the collection and payment to the City of any tax imposed by this Chapter to keep and preserve, or cause to be kept and preserved, for a period of five (5) years all records as may be necessary to compute the amount of any tax due under the provisions of this Chapter. Such records shall clearly substantiate the operator's gross receipts, the amount of room rentals, the rentals paid by permanent lodgers and exemptions claimed by officers and employees of the federal or State of California government and federal credit unions while they are on official business. Such records shall be made available for inspection by the City Auditor and City Finance Director or their authorized agents at all reasonable times.

B. The records maintained by the operator under this Section shall include, but not be limited to, the following:

1. Daily summary sheets for each day the hotel is open for business containing, at a minimum, the following:

a. The name of at least one (1) individual occupying the room;

b. The registration card number applicable to the room;

c. The room number;

d. The daily rate charged and amount collected or charged by credit card for rental of the room;

e. The date occupancy commenced.

2. Registration cards shall be prenumbered and bear consecutive numbers preprinted on the registration cards by a print shop or manufacturer of the cards. Registration cards shall be maintained in sequential order. Voided cards shall be kept by operator for audit purposes. All registration cards shall be accounted for and the amount of the tax stated separately on the card.

3. Numbered Rooms. The operator shall fill out and maintain on file a registration card for each guestroom occupied which shall contain, at a minimum, the following information:

a. The name of at least one (1) individual who will occupy, or be entitled to occupy, the room;

b. The total number of people who will occupy or be entitled to occupy the room;

c. The identification of room by number;

d. The date the occupancy commences and the expected date of the departure of the transient; and

e. The daily rent charged and amount collected as and for rental of the room with the amount of tax stated separately.

4. Exemptions. A written record of each occupancy charge for which an exemption is claimed, including the name of the individual occupying the room, dates of occupancy and reason(s) for exemption.

5. Bank Accounts. All operators shall keep bank statements and deposit slips showing hotel rents and other revenue for verification of the total revenue from operations.

6. Other data substantiating occupancy, rents, exemptions, claimed revenues and exemptions on tax payments, financial documentation, books and ledgers, bank records and similar financial information.

C. Every operator shall keep such records, receipts, invoices, registration cards and other pertinent papers in such form as the business license section may require.

D. The business license section or City Auditor, or any person authorized by the Director, may examine the books, papers, records, registration cards or other pertinent papers and records of any operator and may investigate the character of the business of the operator in order to verify the accuracy of the return made, or, if no return has been made by the operator, to ascertain and determine the amount required to be paid.

E. It is unlawful for the business license section or for any person having audit or administrative duty under this Chapter to make known, in any manner whatever except in the performance of his or her official duties, the business affairs, operations or information obtained from an investigation of the records of the operation. (ORD-05-0010 15, 2005: prior code § 2457)

3.64.085 Tax clearance certificate.

A. Within thirty (30) days after the operative date of this Section, the Director of Finance shall establish procedures which would allow a purchaser, transferee, or other person or entity attempting to obtain ownership of a hotel property which is required to collect tax, to make a written application for a "tax clearance certificate" to establish that the hotel operator has no unpaid taxes due to the City.

B. An administrative fee to cover the cost of issuing the certificate shall be established by resolution of the City Council and applications shall be available from the City Clerk and the business license section. No application for a certificate shall be accepted unless the application is fully completed and the administrative fee is paid in full.

C. Within ninety (90) days of receiving an application and payment of the administrative fee, the City shall do either of the following:

1. Issue the tax clearance certificate, or

2. Request the current hotel operator to make available the operator's transient occupancy tax records for the purpose of conducting an audit regarding transient occupancy taxes that may be due and owing from the operator.

D. The City shall complete an audit performed pursuant to Subsection 3.64.085.C.2 on or before ninety (90) days after the date that the current or former hotel operator has provided all books, records and information necessary to perform a complete tax audit.

E. Within thirty (30) days after completing the audit pursuant to Subsection 3.64.085.D, the City shall notify the applicant of one (1) of the following:

1. The City will issue a tax clearance certificate to the applicant; or

2. After completing the audit, the City has made a determination that the current operator has unpaid transient occupancy tax due and owing and no certificate will be issued; or

3. The operator's records are insufficient to make a determination of whether transient occupancy taxes may be due and owing and therefore the City will not issue a tax clearance certificate due to the insufficiency of the prior owner's records.

F. If the City does not comply with Subsections C through E, the purchaser, transferee, or other person or entity that obtains ownership of the hotel property shall not be liable for any transient occupancy tax obligations incurred prior to the purchase or transfer of the property from the operator.

G. For a tax clearance certificate issued under this Section, all of the following apply:

1. The certificate shall state the amount of tax due and owing for the subject property, if any.

2. The certificate shall state the period of time for which it is valid.

3. The purchaser, transferee, or other person or entity who obtains ownership of the property may rely upon the tax clearance certificate as conclusive evidence of the tax liability associated with the property as of the date specified on the certificate.

H. Any purchaser, transferee, or other person or entity who does not apply for and obtain a tax clearance certificate under this Section, or who obtains a tax clearance certificate that indicates that tax is due and fails to withhold, for the benefit of the City sufficient funds in the escrow account for the purchase of the property to satisfy the transient occupancy tax liability, shall be held liable for the amount of tax due and owing from the operator on the property.

I. This Section may not be construed to relieve an operator or property owner of transient occupancy tax obligations incurred when an operator or owner of the property. (Ord. ORD-05-0010 § 16, 2005)

3.64.090 Cessation of business.

A. Whenever any operator required to collect and remit to the business license section a tax under this Chapter ceases to operate, dissolves, abandons, terminates, liquidates, sells, transfers, or disposes of his business, any tax payable under this Chapter shall become immediately due and payable and such operator shall immediately file a return and pay the tax due.

B. Upon cessation of operations, termination, dissolution, liquidation, bankruptcy or abandonment of a hotel operations by the operator, any operator, officer, or other person having control or supervision of, or who is charged with the responsibility for the filing of returns or payment of the tax, or who is under a duty to act for the operator in complying with this Chapter, shall be personally liable for any unpaid tax or penalty. (Ord. ORD-05-0010 § 17, 2005: prior code § 2458)

3.64.100 Special advertising and promotion fund.

All monies, including penalties, collected pursuant to Section 3.64.030 shall be deposited to a special fund to be known as the special advertising and promotion fund, which fund is created and established. Such fund shall be a continuing fund and not subject to transfer at the close of the fiscal year. Money credited to the special advertising and promotion fund may be expended for the following purposes only:

A. Refunds made pursuant to the provisions of Section 3.64.055;

B. For advertising, promotional, and public relations projects calling attention to the City, its natural advantages, resources, enterprises, attractions, climate, and facilities;

C. For paying obligations incurred or to be incurred by the City to solicit and encourage developments and improvements on the tide and submerged lands granted to the City by the State by Chapter 676, Statutes of 1911, Chapter 102, Statutes of 1925, Chapter 158, Statutes of 1935, as further described in Chapter 29, Statutes of 1956, first extraordinary session, and Chapter 138, Statutes of 1964, first extraordinary session; provided, however, only monies collected and remitted to the City for occupancy of a guestroom situated on the tide and submerged lands and penalties and interest earnings attributable to such monies shall be expended for the purpose described in this Subsection. (Ord. ORD-05-0010 § 18, 2005; Ord. C-6051 § 1, 1984: Ord. C-5545 § 1, 1979: prior code § 2455)

3.64.110 Failure to collect or pay and notice of determination.

A. If any operator fails or refuses to collect the tax or to make, within the time provided in this Chapter, any return or remittance required by this Chapter, the business license section shall proceed in such manner as it may deem best to obtain facts and information on which to base its estimate of the tax due including, but not limited to, an audit of operator's records. As soon as the business license section procures such facts and information upon which to base an estimate of the tax due, it shall proceed to determine and assess against such operator the tax and penalties provided for by this Chapter. If an audit discloses underreport-

ing or underpayment of ten percent (10%) or more of the tax, then the operator shall be charged for the cost of the audit, not to exceed one thousand five hundred dollars ($1,500.00).

B. The Director shall notify such operator with a notice of determination of tax due, which notice shall include both tax and penalties, if applicable, by first class mail, postage prepaid, to the operator's last known address. (Ord. ORD-05-0010 § 19, 2005: prior code § 2456)

3.64.112 Request for hearing with Director.

A. Any operator not in agreement with the notice of tax determination shall request a hearing in writing on the amount assessed within ten (10) days of the date contained in the notice of determination and pay a hearing fee which shall be the same fee as set by resolution for business license hearings. Upon a timely, written request and fee payment from the operator, the Director or his designee shall give not less than ten (10) days' written notice by mail to the operator to show cause at a time and place fixed in said notice, why the assessed amount should not be fixed for tax and penalty. The request for hearing shall be filed with the business license section.

B. Conduct at hearing. The operator may appear and offer evidence why the assessed tax and penalties should not be fixed. The operator may be represented by counsel.

C. Determination. The Director or his designee shall determine the proper tax and penalties to be remitted and shall give a written notice of final tax determination to the operator by first class mail, postage prepaid, containing the amount of tax and penalties due. The amount determined to be due shall be delinquent fifteen (15) days following the date on the final notice of tax determination, unless an appeal is taken to the City Council as provided in Section 3.64.115.

D. Failure to timely request a hearing with the Director shall be deemed a waiver of the right to appeal as prescribed in Section 3.64.115 and to seek judicial review. The notice of determination assessed by the business license section shall become conclusive and immediately due and payable. (Ord. ORD-05-0010 § 20, 2005)

3.64.115 Appeal of final notice of determination.

A. Any operator not in agreement with the Director's final notice of determination with respect to the amount of tax and penalties as determined by the Director may appeal to the City Council by filing a notice of appeal with the City Clerk within fifteen (15) days of the date on the Director's final notice of determination of tax due. All fees for an appeal shall be the same as required for business license appeals as set by resolution and paid at the time of filing.

B. The City Council appeal and hearing shall be according to the procedures established in Chapter 2.93, except Section 2.93.060.

C. The decision of the City Council shall be final and conclusive and any amount determined to be due for tax and penalties shall be due and payable within ten (10) days of the date on the notice of decision. (Ord. ORD-05-0010 § 21, 2005)

3.64.120 Delinquent payment penalty.

A. If any operator fails or refuses to remit to the business license section the proper amount of the tax required to be collected and paid under this Chapter on or before the last day of the month following the month in which said taxes were collected by the operator, and up to a period of thirty (30) days thereafter, shall have added to such tax a penalty of twenty-five percent (25%) of the amount of the tax, in addition to the amount of the tax, which penalty shall immediately become a part of the tax due for collection purposes.

B. Any operator who fails or refuses to remit to the business license section the proper amount of the tax required to be collected and paid under this Chapter for any period more than thirty (30) days following the date on which the remittance first became delinquent shall pay a delinquency penalty of fifty percent (50%) of the amount of the tax in addition to the amount of the tax, which penalty shall immediately become part of the tax due for collection purposes.

C. An additional penalty of one percent (1%) per month shall be assessed on the tax remaining unpaid more than sixty (60) days following the date on which the remittance first became delinquent. (Ord. ORD-05-0010 § 22, 2005: Ord. C-5584 § 1, 1980: Ord. C-5508 § 1, 1979: prior code § 2454)

3.64.130 Action to collect tax and enforcement of lien.

A. Any tax required to be paid by any transient under the provisions of this Chapter shall be deemed a debt owed by the transient to the City.

B. Failure of an operator to collect tax required to be paid by a transient shall not excuse the operator from the operator's obligation under this Chapter. Any such tax collected by an operator which has not been paid to the City shall be deemed a debt owed by the operator to the City. Any tax required to be paid by any transient which is not collected by the operator is deemed a debt owed by the operator to the City.

C. Any person owing money to the City under the provisions of this Chapter shall be liable to an action brought in the name of the City for the recovery of such amount including a reasonable attorney fee.

D. Assessment and lien. Whenever delinquent tax and penalties are not paid to the City after proper notification to the property/business owner and operator, the total uncollected amount including tax and penalties and administrative fees may become assessments, and the City Clerk or the City Clerk's duly authorized representative may compile a list of such assessments together with parcel number designations and address upon which the assessments are being fixed.

After notice and hearing, and upon confirmation of the imposition of the liens by resolution of the City Council and Mayor, the City Clerk shall file a certified copy of the approved resolution with the Los Angeles County Tax Collector, State of California, directing that all unpaid transient occupancy taxes, penalties and administrative fees be entered as lien charges against said property as it appears on the current assessment rolls. Liens will be collected at the same time and in the same manner, subject to the same penalties and interest upon delinquencies, as the general real property taxes are collected for the City of Long Beach. The City Clerk shall present for recording appropriate notices of the imposition of these liens with the Los Angeles County Recorder.

This Chapter does not give the City a preference over any recorded lien which attached prior to the date when the amounts required to be paid became a lien. (Ord. ORD-05-0010 § 23, 2005)

3.64.150 Enjoining collection forbidden.

A. No injunction or writ of mandate or other legal or equitable process shall issue in any suit, action or proceeding in any court against the City or an officer thereof, to prevent or enjoin the collection of taxes sought to be collected pursuant to this Chapter and payment of all tax, interest and penalties shall be required as a condition precedent to seeking judicial review of any tax liability.

B. No suit or proceeding shall be maintained in any court for recovery of any amount alleged to have been erroneously or illegally determined or collected unless a claim for each refund or credit has been duly filed pursuant to Section 3.64.055. (Ord. ORD-05-0010 § 24, 2005)

3.64.160 Assessments, presumption and time limit for action to collect unpaid taxes.

In the case of an audit or investigation by the City, the Director may make a deficiency determination or assessment for transient occupancy tax not paid or remitted by a person required to pay or remit, as evidenced by information provided by such person or other persons to the Director, or based upon a reasonable estimate of the Director if complete evidence is not provided by the operator or person required to pay or remit the tax. Such reasonable estimate shall be entitled to a rebuttable presumption of correctness. Notwithstanding any other provision of law, except in the case of fraud or the failure of an operator to file a transient occupancy tax return, the City may institute an action to collect unpaid transient occu-

pancy taxes within four (4) years of the date on which the transient occupancy taxes were required to be paid. (ORD-05-0010 § 25, 2005)

CHAPTER 3.68 UTILITY USERS TAX

3.68.010 Utility users tax—Tax rate.

Notwithstanding any provision to the contrary in Sections 3.68.030 through 3.68.060 of this Chapter, the tax imposed therein shall be imposed at the rate set forth below:

Commencement Date	Rate
October 1, 2000	9.0%
April 1, 2001	8.0%
October 1, 2002	7.0%
October 1, 2003	6.0%
October 1, 2004, and thereafter	5.0%

(Ord. C-7735 § 1, 2001: prior code § 2480)

3.68.020 Definitions.

Except where the context otherwise requires, the definitions given in this Section govern the construction of this Chapter:

A. "Ancillary telecommunications services" means services that are associated with or incidental to the provision, use or enjoyment of telecommunications services including, but not limited to, the following:

1. Services that link two (2) or more participants of an audio or video conference call, including the provision of a telephone number.

2. Services that separately state information pertaining to individual calls on a customer's billing statement.

3. Services that provide telephone number information, and/or address information.

4. Services offered in connection with one (1) or more telecommunications services, which offer advanced calling features that allow customers to identify callers or to manage multiple calls and call connections.

5. Services that enable customers to store, send or receive recorded messages.

B. "Billing address" means the mailing address of a service user where a service supplier submits invoices or bills for payment by the service user.

C. "City" means the City of Long Beach.

D. "Electrical corporation" has the same meaning as defined in Section 218 of the Public Utilities Code.

E. "Month" means a calendar month.

F. "Person" means, without limitation, any natural person; domestic, nonprofit or foreign corporation; firm; trust; estate; association; syndicate; joint stock company; limited liability company; partnership of any kind; joint venture; club; business or common-law trust of any kind; society; cooperative; receiver, trustee, guardian or other representative appointed by order of any court; municipal district; or municipal corporation (other than the City); or the manager, lessee, agent, servant, officer or employee of any of them.

G. "Service address" means the residential street address or the business street address of the service user's primary place of use.

H. "Service supplier" means any entity or person that provides telephone communication, electric, gas, or water service to a user of such services within the City.

I. "Service user" means a person required to pay a tax imposed by this Chapter.

J. "Tax administrator" means the revenue administrator of the City of Long Beach.

K. Telephone communication services" includes the transmission, conveyance, or routing of voice, data, audio, video, or any other information or signals to a point, or between or among points, whether or not such information is transmitted through interconnected service with the public switched network, whatever the technology used, whether such transmission, conveyance or routing occurs by wire, cable, fiber-optic, light wave, laser, microwave, radio wave (including, but not limited to, cellular service, commercial mobile service, personal communications service (PCS), specialized mobile radio (SMR), and other types of personal wireless service (see 47 USCA Section 332(c) (7) (C) (i)) regardless of radio spectrum used, switch-

ing facilities, satellite or any other technology now existing or developed after the adoption of this Section, and includes, without limitation, fiber optic, coaxial cable, and wireless. The term "telephone communication services" includes such transmission, conveyance, or routing in which computer processing applications are used to act on the form, code or protocol of the content for purposes of transmission, conveyance or routing without regard to whether such services are referred to as Voice over Internet Protocol (VoIP) services or are classified by the Federal Communications Commission as enhanced or value added, and includes video and/or data services that are functionally integrated with telecommunications services. "Telephone communication services" include, but are not limited to, the following services, regardless of the manner or basis on which such services are calculated or billed: central office and custom calling features (including but not limited to call waiting, call forwarding, caller identification and three-way calling), local number portability, text messaging, ancillary telecommunication services, prepaid and post-paid telecommunications services (including but not limited to prepaid calling cards); mobile telecommunications service; private telecommunication service; paging service; 800 service (or any other toll-free numbers designated by the Federal Communications Commission); and value-added non-voice data service. For purposes of this Section, "private telecommunication service" means any dedicated telephone communications service that entitle a user to exclusive or priority use of communications channels. "Telephone communication service" does not include: internet access services; video programming services; and digital downloads, such as downloads of books, music, ringtones, games and similar digital products.

L. "Telephone corporation" has the same meaning as defined in section 234 of the Public Utilities Code. (Measure G, 11-4-2008, eff. 12-19-2008; prior code § 2480.1)

3.68.030 Electricity users tax.

A. There is imposed a tax upon every person in the City using electrical energy in the City. The tax imposed by this Section shall be at the rate of ten percent (10%) of the charges made for such energy and shall be paid by the person paying for such energy.

B. "Charges," as used in this Section, includes charges made for: (1) metered energy, and (2) minimum charges for service, including customer charges, service charges, demand charges, standby charges, and annual and monthly charges.

C. As used in this Section, the term "using electrical energy" shall not be construed to mean the storage of such energy by a person in a battery owned or possessed by him or her for use in an automobile or other machinery or device apart from the premises upon which the energy was received; provided, however, that the term shall include the receiving of such energy for the purpose of using it in the charging of batteries; nor shall the term include the mere receiving of such energy by an electrical corporation or governmental agency at a point within the City for resale.

D. There shall be excluded from the base on which the tax imposed in this Section is computed charges made for electricity used in the production or distribution of water. The term "water" as used in this Subsection shall not include wastewater, salt water, or any water used in the production of oil or gas. (Ord. C-6897 § 1, 1991; Ord. C-6392 § 1, 1987: prior code § 2480.3)

3.68.040 Gas users tax.

A. There is imposed a tax upon every person in the City using gas in the City which is delivered directly or indirectly through mains or pipes. The tax imposed by this Section shall be at the rate of ten percent (10%) of the charges made for such gas and shall be paid by the person paying for such gas.

B. "Charges", as used in this Section, shall include minimum charges for service of the gas commodity, whether owned by the City or the customer, and the gas transportation, including, but not limited to, customer charges, service charges, standby charges, and annual and monthly charges. (Measure LB § 1, 2024; Ord. C-7224 § 1, 1994; Ord. C-6897 § 2, 1991: Ord. C-6745 § 1, 1990; prior code § 2480.4)

3.68.050 Telephone users tax.

A. There is imposed a tax upon every person, other than a telephone corporation, who uses telephone communication services in the City, including intrastate, interstate, and international telephone communication services, to the extent permitted by federal and State law. Interstate calls shall be deemed to include calls to the District of Columbia. The telephone users tax is intended to, and does, apply to all charges within the City's tax jurisdiction, such as charges billed to a telephone account having a situs in the City as permitted by the Mobile Telecommunications Sourcing Act of 2000, 4 U.S.C. § 116 et seq. The tax imposed by this Section shall be at the rate of five percent (5%). The tax shall apply to all charges made for such telephone communication services and shall be collected from the service user by the services supplier or its billing agent. There is a rebuttable presumption that telephone communication services billed to a billing or service address in the City are used, in whole or in part, within the City, and that such services are subject to taxation under this Chapter. There is also a rebuttable presumption that telephone communication services sold within the City that are not billed to a billing address or provided to a primary physical location (such as prepaid calling card services) are used, in whole or in part, within the City and are therefore subject to taxation under this Chapter.

B. As used in this Section, the term "charges" shall include the value of any other services, credits, property of every kind or nature, or other consideration provided by the service user in exchange for the telephone communication services.

C. The tax administrator may, from time to time, issue and disseminate to telecommunication service suppliers administrative rulings identifying those telecommunication services that are subject to the tax of Subsection A of this Section. Such administrative rulings shall be consistent with legal nexus and laws pertaining to telephone communications services and shall not impose a new tax, revise an existing tax methodology, or increase an existing tax, except as allowed by California Government Code Section 53750(h) (2) and (3) or other law. The Tax Administrator may consider State-wide interpretive rules and guidelines promulgated by any government agency or association of government agencies as a factor in determining the intent of voters adopting this Section. To the extent that the Tax Administrator determines that the tax imposed under this Section shall not be collected in full for any period of time, such an administrative ruling falls within the Tax Administrator's discretion to settle disputes. The Tax Administrator's exercise of prosecutorial forbearance under this Chapter does not constitute a change in taxing methodology for purposes of Government Code Section 53750(h), and the City does not waive or abrogate its ability to impose the telephone users' tax in full as a result of issuing such administrative rulings and may suspend such rulings and recommence collection of the tax without additional voter approval.

D. The following shall be exempt from the tax imposed by this Section:

1. Charges paid for by inserting coins in coin-operated telephones available to the public with respect to local telephone service, or with respect to long distance telephone service if the charge for such long distance telephone service is less than twenty-five cents ($0.25); except that where such coin-operated telephone service is furnished for a guaranteed amount, the amounts paid under such guarantee plus any fixed monthly or other periodic charge shall be subject to the tax.

2. Except with respect to local telephone service, on any charges for services used in the collection of news for the public press, or a news ticker service furnishing a general news service similar to that of the public press, or radio broadcasting, or in the dissemination of news through the public press, or a news ticker service furnishing a general news service similar to that of the public press, or by means of radio broadcasting, if the charge for such service is billed in writing to such person.

3. Charges for services furnished to an international organization designated under the International Organizations Immunities Act and defined in 22 USCA 288 or to the American National Red Cross.

4. Charges for any long distance telephone service which originates within a combat zone, as defined in section 112 of the Internal Revenue Code, from a member of the Armed Forces of the United States performing service in such combat zone, as determined under such section, provided a certificate, setting forth such facts as the Secretary of the U.S. Treasury may by regulations prescribe, is furnished to the person receiving such payment.

5. Charges for any long distance telephone service to the extent that the amount so paid is for use by a common carrier, telephone or telegraph company, or radio broadcasting station or network in the conduct of its business as such.

6. Amounts paid by a nonprofit hospital for services furnished to such organization. For purposes of this Subsection, the term "nonprofit hospital" means a hospital referred to in Internal Revenue Code section 170(b)(1)(A)(iii) which is exempt from income tax under Internal Revenue Code section 501(a).

7. Charges for services or facilities furnished to the government of any State, or any political subdivision thereof, or the District of Columbia.

8. Charges paid by a nonprofit educational organization for services or facilities furnished to such organization. For purposes of this Subsection, the term "nonprofit educational organization" means an educational organization described in Internal Revenue Code section 170(b)(1)(A)(ii) which is exempt from income tax under Internal Revenue Code section 501(a). The term also includes a school operated as an activity of an organization described in Internal Revenue Code section 501(c)(3) which is exempt from income tax under Internal Revenue Code section 501(a), if such school normally maintains a regular faculty and curriculum and normally has a regularly enrolled body of pupils or students in attendance at the place where its educational activities are regularly carried on.

9. Charges for maritime mobile services as defined in Section 2.1 of Title 47 of the Code of Federal Regulations as such section existed on January 1, 1970.

E. To prevent actual multi-jurisdictional taxation of telephone communication services subject to tax under this Section, any service user, upon proof to the Tax Administrator that the service user has previously paid the same tax in another American jurisdiction on such telephone communication services, shall be allowed a credit against the tax imposed to the extent of the amount of such tax legally imposed in such other jurisdiction; provided, however, the amount of credit shall not exceed the tax owed to the City under this Section. This ordinance shall be construed broadly in favor of the imposition and collection of the utility users tax to the fullest extent permitted by California and federal law, and as it may change from time to time.

F. The tax on telephone communication services imposed by this Section shall be collected from the service user by the service supplier. The amount of tax collected from the twenty-sixth day of each month through the twenty-fifth day of the following month shall be remitted to the City Clerk on or before the twenty-sixth day of such following month, or at the option of the person required to collect and remit the tax, an estimated amount of tax collected, measured by billings of the previous month, shall be remitted to the Clerk on or before the twenty-sixth day of each month.

G. For purposes of imposing a tax or establishing a duty to collect and remit a tax under this subchapter, "substantial nexus" and "minimum contacts" shall be construed broadly in favor of the imposition, collection and/or remittance of the utility users tax to the fullest extent permitted by State and federal law, and as that law may

change from time to time. Any telephone communication service (including VoIP) used by a person with a service address in the City, which service is capable of making a call to another person on the general telephone network, shall be subject to a rebuttable presumption that "substantial nexus/ minimum contacts" exists for purposes of imposing a tax, or establishing a duty to collect and remit a tax, under this Chapter. A service supplier shall be deemed to have sufficient activity in the City to be obligated to collect and remit the tax imposed by this Chapter if it does any of the following: maintains or has within the City, directly or through an agent or subsidiary, a place of business of any nature; solicits business in the City by employees, independent contractors, resellers, agents or other representatives; solicits business in the City by means of advertising that is broadcast or relayed from a transmitter within the City or distributed from a location within the City; or advertises in newspapers or other periodicals printed and published within the City or through materials distributed in the City by means other than the United States mail. (Measure G, 11-4-2008, eff. 12-19-2008; ORD-06-0035 § 1, 2006: Ord. C-6897 § 3, 1991; Ord. C-6744 § 1, 1990: Ord. C-6127 § 1, 1985: prior code § 2480.2)

3.68.060 Water users tax.

A. There is imposed a tax upon every person using in the City water which is delivered through mains or pipes. The tax imposed by this Section shall be at the rate of ten percent (10%) of the charges made for such water and shall be paid by the person paying for such water.

B. "Charges", as used in this Section, shall include minimum charges for service, including customer charges, service charges, standby charges, and annual and monthly charges.

C. There shall be excluded from the base on which the tax imposed in this Section is computed charges made for water which is to be resold and delivered through mains or pipes and charges made for water used in the generation of electrical energy by an electrical corporation. (Ord. C-6897 § 4, 1991; Ord. C-6745 § 2, 1990; prior code § 2480.5)

3.68.065 Segregation of nontaxable charges.

As used in this Chapter, the term "charges" shall include the value of all consideration provided by the service user in exchange for utility services. If a nontaxable service and a taxable service are billed together under a single charge, the entire charge shall be deemed taxable unless the service supplier identifies, by verifiable data, based upon its books and records that are kept in the regular course of business, in a manner that is consistent with generally accepted accounting principles, the nontaxable component of the charge. The service supplier has the burden of proving the proper apportionment of taxable and nontaxable charges. (Measure G, 11-4-2008, eff. 12-19-2008; ORD-06-0035 § 3, 2006)

3.68.070 Exemption—Constitutional violation.

Nothing in this Chapter shall be construed as imposing a tax upon any person if imposition of such tax upon that person would be in violation of the Constitution of the United States or the Constitution of the State. (Prior code § 2480.6)

3.68.075 Effect of State and federal authorization.

To the extent that the City's authorization to impose or collect any tax imposed under this Chapter is expanded or limited as a result of changes in State or federal law, no amendment or modification of this Chapter shall be required to conform the tax to those changes, and the tax shall be imposed and collected to the full extent of the City's authorization up to the full amount of the tax imposed under this Chapter. (Measure G, 11-4-2008, eff. 12-19-2008)

3.68.080 Exemption—Application.

A. The tax imposed by this Chapter shall not apply to any individual sixty-two (62) years of age or older who uses telephone, electric, gas or water services, in or upon any premises occupied by such individual, provided the combined gross income of all members of the household in which such individual resides does not exceed a certain maxi-

mum amount for the calendar year prior to the fiscal year for which the exemption provided in this Chapter is applied for. The maximum amount of combined gross income of all members of the household shall be established by resolution of the City Council and available at the office of the City Clerk, 333 West Ocean Boulevard; and Commercial Services Bureau, 333 West Ocean Boulevard, Long Beach, California 90802.

B. The tax imposed by this Chapter shall not apply to any individual who is disabled, as defined herein, or in whose household a disabled individual resides, who uses telephone, electric, gas or water services, in or upon any premises occupied by such a disabled individual, provided the combined gross income of all members of the household in which such individual resides does not exceed a certain maximum amount for the calendar year prior to the fiscal year for which the exemption provided in this Chapter is applied for. The maximum amount of combined gross income of all members of the household shall be established by resolution of the City Council and available at the office of the City Clerk, 333 West Ocean Boulevard; and Commercial Services Bureau, 333 West Ocean Boulevard, Long Beach, California 90802.

For purposes of this Section, a "disabled individual" is defined as an individual under a physical disability as defined in Section 223 of the Social Security Act (42 USC 423) and Section 102(b)(5) of the Developmentally Disabled Assistance and Bill of Rights Act (42 USC 6001(7)), and as such sections shall be amended from time to time.

For purposes of this Section, gross income of all members of the household shall include, but not be limited to, the total gross wages, salary, business receipts, rents, gains, profits, gifts, inheritances, trusts, stock earnings, royalties, alimony, child support, welfare payments, Medicare, pensions, Social Security, and all other receipts whether received in cash, credits, property or services of any kind or nature during each calendar year for which the applicant seeks an exemption.

C. The exemptions granted by this Section shall not eliminate the duty of the service supplier from collecting taxes from such exempt individuals or the duty of such exempt individuals from paying such taxes to the service supplier unless an exemption is applied for by the service user and granted in accordance with the provisions of Subsection D of this Section.

D. Any service user exempt from the taxes imposed by this Chapter because of the provisions of Subsections A or B of this Section may file an application with the City Treasurer for an exemption. Such application shall be made upon a form supplied by the City Treasurer and shall recite facts under oath which qualify the applicant for an exemption. The City Treasurer shall review all such applications and certify as exempt those applicants determined to qualify therefor and shall notify all service suppliers affected that such exemption has been approved, stating the name of the applicant, the address to which such exempt service is being supplied, the account number, if any, and such other information as may be necessary for the service supplier to remove the exempt service user from its tax billing procedure. Upon receipt of such notice, the service supplier shall not be required to continue to bill any further tax imposed by this Chapter from such exempt service user upon the earlier of a change of service address, termination of service, or until further notice by the City Treasurer is given. The service supplier shall eliminate such exempt service user from its tax billing procedure upon receipt of such notice from the City Treasurer, but no later than sixty (60) days after receipt of such notice from the City Treasurer, or as otherwise provided by law.

All exemptions shall continue and be renewed automatically by the City Treasurer so long as the prerequisite facts supporting the initial qualification for exemption continue; provided, however, that the exemption shall automatically terminate with any change in the service address or residence of the exempt individual; further provided, such individual may nevertheless apply for a new exemption with each change of address or residence. Any individual exempt from the tax shall notify the City Treasurer within ten (10) days of any change in fact or circumstance which might dis-

qualify such individual from receiving such exemption. The City Treasurer may request reverification of eligibility from individuals claiming an exemption annually or as deemed necessary by the City Treasurer. It shall be a misdemeanor for any person in a household to knowingly receive the benefits of the exemptions provided by this Section when the basis for such exemption either does not exist or ceases to exist.

Notwithstanding any of the provisions of this Subsection, however, any service supplier who determines by any means that a new or nonexempt service user is receiving service through a meter or connection exempt by virtue of an exemption issued to a previous user or exempt user of the same meter or connection, such service supplier shall immediately notify the City Treasurer of such fact and the City Treasurer shall conduct an investigation to ascertain whether or not the provisions of this Section have been complied with, and, where appropriate, order the service supplier to commence collecting the tax from the nonexempt service user. (Ord. C-7809 § 1, 2002; Ord. C-7748 § 1, 2001: Ord. C-7733 § 1, 2001: Ord. C-6805 § 1, 1990: Ord. C-6075 § 1, 1984; Ord. C-5979 § 1, 1983; Ord. C-5714 § 1, 1981; prior code § 2480.6.1)

3.68.090 Refund in lieu of exemption.

A. Commencing January 1, 1977, any individual entitled to be exempt from the taxes imposed by this Chapter who used electric, gas or water services during the preceding calendar year and paid the taxes required in this Chapter either directly or indirectly to the service user rather than the service supplier may file an application for a refund on forms provided by the City Treasurer. The application shall contain a declaration of the facts, under oath, which qualify the applicant for the refund. The application shall be filed on January 1st but not later than March 1st of each year, for the preceding calendar year. Section 3.48.040 of this Title relating to the conditions for payment of refunds shall apply.

B. The refund allowable to applicant under this Section shall be two dollars and twenty-five cents ($2.25) per utility per month, for each full month of service. (ORD-06-0011 § 4, 2006; Ord. C-7758 § 1, 2001: Ord. C-6075 § 2, 1984; Ord. C-5979 § 2, 1983; Ord. C-5271 § 1, 1976: prior code § 2480.6.2)

3.68.100 Collection.

A. Every person receiving payment of charges from a service user shall collect the amount of tax imposed by this Chapter from the service user.

B. The tax shall be collected insofar as practicable at the same time as, and along with, the collection of charges made in accordance with the regular billing practice of the service supplier.

C. The duty to collect tax from a service user shall commence with the beginning of the first regular billing period applicable to that person which starts on or after the operative date of this Chapter. If a person received more than one (1) billing, one (1) or more being for different periods than another, the duty to collect shall arise separately for each billing period. (Prior code § 2480.7)

3.68.110 Returns and remittances.

Each service supplier shall, on or before the twentieth of each month, make a return to the City Treasurer-City Tax Collector on forms in the manner prescribed by the City Treasurer-City Tax Collector, stating the amount of taxes billed by the service supplier during the preceding month. At the time the return is filed, the full amount of the tax collected shall be remitted to the City Treasurer-City Tax Collector. The City Treasurer-City Tax Collector is authorized to properly determine if the tax imposed is being levied and collected in accordance with this Chapter. Returns and remittances are due immediately upon cessation of business for any reason. (Prior code § 2480.8)

3.68.120 Records.

It shall be the duty of service supplier to keep and reserve for a period of three (3) years all records as may be necessary to determine the amount of such tax as he or she may have been liable for the collection and remittance to the City Treasurer-City Tax Collector, which records City personnel shall have the right to inspect at all

reasonable times. (Prior code § 2480.13)

3.68.130 Delinquent payment penalty.

A. Taxes collected from a service user which are not remitted to the City Treasurer-City Tax Collector on or before the due dates provided in this Chapter are delinquent.

B. Penalties for delinquency in remittance of any tax collected or any deficiency determination shall attach and be paid by the service supplier at the rate of fifteen percent (15%) of the total tax collected or imposed in this Chapter.

C. The City Treasurer-City Tax Collector shall have power to impose additional penalties upon the service supplier under the provisions of this Chapter for fraud or negligence in reporting or remitting at the rate of fifteen percent (15%) of the amount of the tax collected or as recomputed by the City Treasurer-City Tax Collector.

D. Every penalty imposed under the provisions of this Section shall become a part of the tax required to be remitted. (Prior code § 2480.9)

3.68.140 Failure to pay—Administrative remedy.

Whenever the City Treasurer-City Tax Collector determines that a service user has deliberately withheld the amount of the tax owed by him or her from the amounts remitted to a service supplier, or that a service user has failed to pay the amount of the tax for a period of two (2) or more billing periods, or whenever the City Treasurer-City Tax Collector deems it in the best interest of the City, he or she may relieve the service supplier of the obligation to collect taxes due under this Chapter from certain named service users for specified billing periods. The City Treasurer-City Tax Collector shall notify the service user that he or she has assumed responsibility to collect the taxes due for the stated periods and demand payment of such taxes. The notice shall be served on the service user by handing it to him or her personally or by deposit of the notice in the United States Postal Service, postage prepaid thereon, addressed to the service user at the address to which billing was made by the service supplier; or should the service user have changed his or her address, to his or her last known address. If a service user fails to remit the tax to the City Treasurer-City Tax Collector within fifteen (15) days from the date of the service of the notice upon him or her, which shall be the date of mailing if service is not accomplished in person, a penalty of twenty-five percent (25%) of the amount of the tax set forth in the notice shall be imposed, but in no event shall the total penalty for nonpayment of the delinquent tax accounts be less than five dollars ($5.00). The penalty shall thereupon become part of the tax required to be paid by this Chapter. (Prior code § 2480.10)

3.68.150 Collection action.

Any tax required to be paid by a service user under the provisions of this Chapter shall be deemed a debt owed by the service user to the City. Any such tax collected from a service user which has not been remitted to the City Treasurer-City Tax Collector shall be deemed a debt owed to the City by the service supplier. Any person owing money to the City under the provisions of this Chapter shall be liable to an action brought in the name of the City for the recovery of such amount. (Ord. C-5873 § 1, 1982: prior code § 2480.12)

3.68.160 Refunds.

A. Whenever the amount of any tax has been overpaid or paid more than once or has been erroneously or illegally collected or received by the City Clerk or City Treasurer-City Tax Collector under this Chapter, it may be refunded as provided in this Section.

B. A service supplier may claim a refund or take as credit against taxes collected and remitted the amount overpaid, paid more than once, or erroneously or illegally collected or received, when it is established in a manner prescribed by the City Treasurer-City Tax Collector that the service user from whom the tax has been collected did not owe the tax; provided, however, that neither a refund nor a credit shall be allowed unless the amount of the tax so collected has either been refunded to the service user or credited to charges subsequently payable by the service user to the person required to collect and remit.

C. No refund shall be paid under the provisions of this Section unless the claimant established his or her right thereto by written records showing entitlement thereto.

D. No refund shall be paid under the provisions of this Section unless the claimant has submitted a claim pursuant to this Section. (ORD-06-0035 § 2, 2006: ORD-06-0011 § 5, 2006; prior code § 2480.14)

3.68.170 Independent audit.

The City shall annually verify that the taxes owed under this Chapter have been properly applied, exempted, collected, and remitted in accordance with this Chapter, and properly expended according to applicable law. The annual verification shall be performed by a qualified independent third party and the review shall employ reasonable, cost-effective steps to assure compliance, including the use of sampling audits. The verification shall not be required of as to a service supplier where the cost of the verification is expected to exceed the tax revenues to be reviewed. (Measure G, 11-4-2008, eff. 12-19-2008)

CHAPTER 3.72 TENNIS TRUST ACCOUNT

3.72.010 Created.

There is created and established within the recreation fund a special account to be known as the tennis trust account. All revenue derived by the Recreation Commission from tennis concession privileges at Billie Jean King Tennis Center in Recreation Park and El Dorado Park Tennis Center shall be deposited in the tennis trust account. Gifts, legacies, bequests or other revenue from individuals or organizations to the Recreation Commission may, at the direction of the Recreation Commission by order entered upon its minutes, be deposited in the tennis trust account, unless prohibited by the terms of a particular gift, legacy, or bequest. If not used during any current year, the moneys shall accumulate in the tennis trust account. All interest derived by investment of moneys in the tennis trust account shall accrue solely to the tennis trust account. All expenditures from the tennis trust account shall, in accordance with the Charter of the City, be expended for the purchase, maintenance, operation or improvement of grounds, buildings, structures, equipment or facilities for public tennis at Billie Jean King Tennis Center in Recreation Park and El Dorado Park Tennis Center. (Ord. C-5305 § 1, 1977: prior code § 7430)

CHAPTER 3.76 COMMERCIAL AND INDUSTRIAL LAND BANK

3.76.010 Established.

A. There is established a commercial/industrial land bank to be operated by the City through the Department of Community Development with the advice and recommendations of the Economic Development Commission. In establishing the land bank, the City through the Department of Community Development may purchase, on the open market, commercial and industrial properties. In addition, property owned by the City designated and declared by the City Council to be surplus property shall become a part of the land bank. The parcels may be assembled for subsequent sale or lease to commercial and manufacturing concerns wishing to locate within the City.

B. The Economic Development Commission shall advise the Department of Community Development concerning the program, and shall recommend appropriate guidelines for the operation of the program. The Economic Development Commission shall submit recommendation regarding any and all transactions for City Council approval whether they are the sale of surplus City property or the purchase, sale, lease or disposition of other properties. (Ord. C-5428 § 1, 1978: Ord. C-5337 § 1, 1977)

3.76.020 Land bank fund.

There is established a special fund which shall be called the land bank fund. It shall exist as a revolving fund on a continuing basis from year to year.

A. There shall be transferred or paid into the fund the following funds:

1. Proceeds from the sale, lease or rental of land bank holdings including the proceeds of sale of surplus City property as approved from time to time by the City Council;

2. Federal and other grant funds which have been received by the City for this purpose;

3. Special appropriations as may be authorized by the City Council;

4. Interest accruing on funds on deposits of investments;

5. Other refunds relating to expenditures from the fund;

6. Any other receipts or refunds allocable to the fund.

B. There shall be paid or expended from the fund the following costs and charges:

1. Costs directly related to the purchase and development of land bank holdings. These costs include the cost of land acquisition, escrow costs, title insurance, certain public improvements, development costs, public improvement costs;

2. Costs directly related to the sale, lease or rental of land bank holdings;

3. Staff administration costs;

4. Any expenditures authorized by the City Council necessary for the operation of the program as may be related to matching federal and other grants. (Ord. C-5428 § 2, 1978: Ord. C-5337 § 2, 1977)

CHAPTER 3.80 BUSINESS LICENSE TAX

DIVISION I. PURPOSE AND DEFINITIONS

3.80.110 Purpose of Chapter provisions.

This Chapter is enacted solely for the purpose of raising revenue for general municipal purposes and for the usual current expenses of the City. It is not intended to be regulatory. The payment of a business tax required by this Chapter, and its acceptance by the City, and the issuance of a business license to any person shall not entitle the holder thereof to carry on any business unless he has complied with all of the requirements of this Code, including, but not limited to, those of Title 5 as appropriate, and all other applicable laws, nor to carry on any business in any building or on any premises designated in such business license in the event that such building or premises are situated in a zone or locality in which the conduct of such business is in violation of any law. (Ord. C-6259 § 1 (part), 1986)

3.80.120 Definitions.

For the purpose of this Chapter, certain words and phrases are defined and certain words and phrases shall be construed as set forth in this Division I, unless it is apparent from their context that a different meaning is intended. (Ord. C-6259 § 1 (part), 1986)

3.80.130 Average number of employees.

As used in this Chapter, "average number of employees" means the average number of persons employed daily in the person's business for the period of one (1) year and shall be determined by ascertaining the total number of hours of service performed by all employees during the preceding year, dividing the total number of hours of service thus obtained by the number of hours of service constituting a day's work (according to the custom and bylaws governing such employments), and by again dividing the sum thus obtained by the number of business days in each year. In computing the average number of employees, fractions of numbers shall be excluded. (Ord. C-6259 § 1 (part), 1986)

3.80.133 Business.

As used in this Chapter, "business" means all activities engaged in or caused to be engaged in within Long Beach, including any commercial or industrial enterprise, trade, profession, occupation, vocation, calling, or livelihood, including

rental or lease of residential or nonresidential real estate and mobilehome parks, or independent contractors, whether or not carried on for gain or profit, but shall not include the services rendered by an employee to his employer. (Ord. C-6259 § 1 (part), 1986)

3.80.136 Business license or license.

As used in this Chapter, "business license" or "license" means the certificate issued by the City to the taxpayer upon payment of a tax prescribed by this Chapter evidencing payment of such tax. (Ord. C-6259 § 1 (part), 1986)

3.80.140 Business license tax.

As used in this Chapter, "business license tax" or "business tax" or "license tax" shall mean the tax due for engaging in business in Long Beach. (Ord. C-6259 § 1 (part), 1986)

3.80.143 Calendar quarter.

As used in this Chapter, "calendar quarter" means any consecutive three (3) month period. (Ord. C-6259 § 1 (part), 1986)

3.80.146 Classifications of businesses.

As used in this Chapter, the following classifications of businesses shall have the meanings set forth in this Section:

A. "Contract construction" means any business conducted or carried on by any person who is licensed as a contractor by the State of California and who undertakes to, or submits bids to, or does himself or through others, construct, alter, repair, add to, subtract from or demolish any building, highway, railroad, excavation or other structure, project, development or improvement. "Contract construction" includes, but is not limited to, the business of building contractor, cement contractor, cesspool contractor, decorating/painting contractor, electrical contractor, electrical maintenance contractor, engineering contractor, house mover, lathing contractor, masonry contractor, miscellaneous contractor, plaster contractor, plumbing contractor, refrigeration contractor, roofing contractor, sewer contractor, specialty contractor, subcontractor, tile and marble contractor, and weather stripping contractor.

B. "Manufacturing" means any business conducted or carried on by any person engaged in the business of manufacturing, rebuilding or processing any goods, wares, merchandise, articles, substance or commodity at a fixed place of business within Long Beach. "Manufacturing" includes, but is not limited to, the business of aircraft, boats, motor or nonmotor vehicles and food processing.

C. "Miscellaneous business" means any business conducted or carried on by any person engaged in a business not specifically taxed by other provisions of the ordinance codified in this Chapter and not otherwise exempt.

D. "Oil production" means the business of producing oil from any well located in the City, including the City when functioning in the capacity of unit operator.

E. "Profession" means any business conducted or carried on by any person, group, association, partnership, firm or corporation engaged in a profession or vocation licensed by the State, related to a licensed profession or vocation, and/or requiring a period of specialized training such as, but not limited to, physicians, dentists, attorneys and accountants. "Profession" includes, but is not limited to, the business of accountant, architect, attorney, chiropractor, dentist, doctor, doctor - herbs, engineer, optometrist, physician/surgeon, physiotherapist, podiatrist, psychologist, acupuncture, surveyor and veterinarian/dog and cat hospital.

F. "Recreation and entertainment" means any business conducted or carried on by any person engaged in the business of providing entertainment, recreation or amusement services. "Recreation and entertainment" includes, but is not limited to, the business of arcade, dancehall, entertainment cafe with dancing, entertainment cafe without dancing, games, exhibition, amusements, circus, public cardroom and social club.

G. "Rental of residential property" means any business conducted or carried on by any person engaged in the business of conducting or operating an apartment house, roominghouse, boarding-

house or similar residential rental operation for the purpose of dwelling, sleeping or lodging but shall not include bed and breakfast establishments meeting the conditions set forth in Section 21.52.209 of this Code.

H. "Rental of nonresidential property" means any business conducted or carried on by any person engaged in the business of renting or letting a building or structure of any kind, including, but not limited to, office buildings, warehouses, commercial spaces and industrial spaces to a tenant for purposes other than dwelling, sleeping or lodging.

H-1. "Rental space" means the total gross square footage of any building subject to taxation under Sections 3.80.233 or 3.80.236 including, but not limited to, hallways, common areas, parking garages and all similar areas.

I. "Retailing" means any business conducted or carried on at a premises by any person engaged in the sale of goods, wares or merchandise for any purpose other than resale in the regular course of business. "Retailing" includes, but is not limited to, the business of:

1. Automotive dealers and service stations, including, but not limited to, automotive supplies, motor vehicle sales, service stations, aircraft sales and boat sales;

2. Eating and drinking places;

3. Food stores, including, but not limited to, bottled water, candy and confectionery, food products/retail;

4. General merchandise stores, including, but not limited to, cigar store, coin and stamp dealer, department store, drugstore, general merchandise, general retail, gifts, hearing aids, pet shop, secondhand store, antique store and variety;

5. Miscellaneous retailing, including, but not limited to, aircraft sales, auction house, auctioneer, itinerant vendor, junk dealer, pawnbroker and special close out sales.

J. "Services" means any business conducted or carried on by any person engaged in the business of providing services, repairs or improvements to or on real and personal property; renting or leasing personal property to businesses or persons; providing services to persons such as, but not limited to, laundries, cleaning and dyeing, shoe repair, barber and beauty shops, and photographic studios; or involving the operation of a hotel or motel. "Services" includes, but is not limited to, the business of:

1. Auto repair, services (transportation) and garages, including, but not limited to, aircraft for hire, aircraft repair, auto parking space, auto repair, auto wrecking, boats/common carrier, boats/pleasure, motorcycle rental, tow truck, and trailer rental;

2. Health service, including, but not limited to, hospital, hospital/convalescent and residential care home, or outpatient clinic;

3. Miscellaneous repair services, including, but not limited, general servicing;

4. Personal and business services, including, but not limited to, advertising agency, alarm installation/sales, animal kennel, barbershop, beauty shop, bathhouse/health parlor/spa, beach equipment rental, business trade school, cleaner, cleaning plant, collection agency, commission broker, dance instructor, day nursery/school, dog grooming, employment agency, fortuneteller, hotels, income tax, large volume transfer stations, linen supply, livery stable/riding academy, loan business, locksmith, manicurist, massage parlor, massager, miscellaneous rental, motels, nurses registry, offal collection, photographer solicitor/transient, photographer/studio, physical fitness, printing, private investigator, private patrol system, private waste collection, processing station, public relations, real estate broker, real estate agent, repossessing agency, tattoo artist, undertaker and wedding chapel; provided, however, that nothing in this Section shall be deemed to impose a separate business license tax upon an employee of any business which is otherwise subject to payment of the prescribed tax imposed by this Section including any tax which is based on the number of employees of such business.

K. "Vending operations" means any business conducted or carried on by any person engaged in the business of owning, renting, leasing, lending, or otherwise distributing or supplying coin oper-

ated machines while retaining title thereto. Such machines include, but are not limited to, coin operated vending, amusement and service machines.

L. "Wholesaling" means any business conducted or carried on by any person engaged in the business of selling goods, wares or merchandise for the purpose of resale in the regular course of business whether with or without stock. (ORD-24-0002 § 2, 2024; ORD-13-0003 § 1, 2013; Ord. C-6986 § 1, 1992; Ord. C-6627 § 1, 1989; Ord. C-6325 § 1, 1986: Ord. C-6259 § 1 (part), 1986)

3.80.148 Director.

As used in this Chapter, "Director" or "Director of Financial Management" means the Director of Financial Management or his/her designee. (Ord. C-7783 § 1, 2002)

3.80.150 Employee.

As used in this Chapter, "employee" means either: (1) each and every person engaged in the operation or conduct of any business, whether as owner, member of the owner's family, partner, associate, agent, manager or solicitor, and each and every other person employed or working in such business for a wage, salary, commission or room and board; or (2) any person who is regarded as an employee of a business for purposes of the workers' compensation laws of the State of California (including, without limitation, a real estate agent working for, or engaged by, a real estate broker) and which business is subject to the provisions of this Chapter. Notwithstanding the above, the owner of a sole proprietorship shall not be deemed to be an "employee" for purposes of this Chapter. (ORD-13-0003, § 2, 2013; Ord. C-7438 § 1, 1996: Ord. C-6259 § 1 (part), 1986)

3.80.153 Engaged in business.

As used in this Chapter, "engaged in business" means the commencing, conducting, operating, managing or carrying on of a business and the exercise of corporate or franchise powers, whether done as owner or by means of an officer, agent, manager, employee, servant or otherwise, whether operating from a fixed location in Long Beach or coming into Long Beach from an outside location to engage in such activities. (Ord. C-6259 § 1 (part), 1986)

3.80.156 Fixed place of business.

As used in this Chapter, "fixed place of business" means any place actually occupied continually during the term of such license by a person or individual engaged in a business where the books and records of such person or individual are kept, or where the business of such person or individual is transacted. (Ord. C-6259 § 1 (part), 1986)

3.80.160 Gross receipts.

As used in this Chapter, "gross receipts" means the total amount, in any calendar year, of the sale price of all sales, the total amount charged or received for the performance of any act, service or employment of whatever nature it may be, whether or not such service, act or employment is done as a part of or in connection with the sale of goods, wares, merchandise, for which a charge is made or credit allowed, including all refunds, cash credits and properties of any amount or nature, any amount for which credit is allowed by the seller to the purchaser without any deduction therefrom, on account of the cost of the property sold, the cost of materials used, the labor or service cost, interest paid or payable, losses, or any other expense whatsoever; provided that cash discounts allowed or payment on sales shall not be included. "Gross receipts" shall also include the amount of any federal, manufacturer's or importer's excise tax included in the price of property sold, even though the manufacturer or importer is also the retailer thereof and whether or not the amount of such tax is stated as a separate charge. "Gross receipts" shall not include the amount of any federal tax imposed on or with respect to retail sales whether or not the amount of such tax is stated as a separate charge. "Gross receipts" shall not include the amount of any federal tax imposed on or with respect to retail sales whether imposed upon the retailer or the consumer and regardless of whether or not the amount of federal tax is stated

to customers as a separate charge, or any California State, City or City and County sales or use tax required by law to be included in or added to the purchase price and collected from the consumer or purchaser, or such part of the sales price of any property previously sold and returned by the purchaser to the seller which is refunded by the seller by way of cash or credit allowances given or taken as part payment on any property so accepted for resale. (Ord. C-6259 § 1 (part), 1986)

3.80.163 Licensee.

As used in this Chapter, "licensee" means any person who holds a valid, current business license issued to that person under this Chapter. (Ord. C-6259 § 1 (part), 1986)

3.80.166 New business.

As used in this Chapter, "new business" means a business in existence and operation which has not previously obtained a current business license. (Ord. C-6259 § 1 (part), 1986)

3.80.170 Person.

As used in this Chapter, "person" means any domestic or foreign corporation, firm, association, syndicate, joint stock company, partnership of any kind, joint venture, club, business or common law trust, society, individual, estate, receiver, retirement plan, trustee, or any other group or combination acting as a unit. (Ord. C-6259 § 1 (part), 1986)

3.80.180 Unique businesses.

As used in this Chapter, the following businesses shall have the meanings set forth in this Section:

A. "Ambulance" or "wheelchair van" or "gurney van" means a vehicle designed and used for the purpose of transporting sick, disabled, or injured persons for compensation over the streets of the City.

B. "Bed and breakfast" means and includes any establishment meeting the criteria set forth in Section 21.52.209 of this Code.

C. "Billiard, pool, bowling or ping pong establishment" means a structure wherein the game of bowling, pool, or ping pong is played and a fee is charged for the playing of the game.

D. "Booth selling" means and includes any game, exhibition, entertainment feature, show, amusement or recreational device, or a food or retail concession in connection with any carnival, local fair, amusement, or sporting event and charging or collecting any admission fee or purchase price or accepting any freewill compensation therefor.

E. "Consignment business" means and includes any business conducted by a vendor who places merchandise in a store or mall for sale by the owner of that store or mall and who pays the owner rent and/or commission for the merchandise sales.

F. "Display/selling booth space" means an area for displaying, selling, offering for sale, or exchanging any item that is sold in a display/selling event.

G. "Farmer's market" means a market which has been certified as a farmer's market by the Los Angeles County Agricultural Commission and wherein each seller is certified by the appropriate county agricultural commission as the grower or producer of the produce.

H. "Food products - mobile" means going from place to place selling or offering for sale from a mobile food vendor vehicle, ice cream vendor vehicle, perishable foodstuff vendor vehicle, or grocery vendor vehicle.

I. "Home occupation" means and includes any business which meets the definition set forth in Section 21.15.1350 of this Code.

J. "Junk collector" means and includes any person carrying on, managing, or employed in the business of going from house to house, or from place to place in the City, collecting or buying junk in small quantities.

K. "Motion picture or live theater" means the business of conducting a theater containing a permanent stage upon which movable scenery and theatrical appliances for the purpose of giving theatrical performances or where moving pictures are exhibited on a screen and a fee is charged, collected, or received.

L. "Peddling" means to solicit, sell, offer or attempt to sell, take orders for or solicit orders for goods, services or any other thing on a door to door or building to building basis between residences or businesses.

M. "Pedicab" means a device upon which any person may ride, propelled by human power through a belt, chain or gears, having two (2) or more wheels, constructed in such a manner to engage in the business of carrying passengers for hire along a fixed route of travel.

N. "Shoeshine stand" means and includes a place where shoes or boots are polished or shined.

O. "Sidewalk vendor" means a person who sells food or merchandise from a pushcart, stand, display, pedal-driven cart, wagon, showcase, rack, or other nonmotorized conveyance, or from one's person, upon a public sidewalk or other pedestrian path.

P. "Swap meet" means and includes any event at which two (2) or more persons offer new or secondhand personal property for sale or exchange and where a fee is charged for the privilege either of offering or displaying such property for sale or exchange and for admission of prospective buyers to the area where the property is offered or displayed for sale or exchange. "Swap meet" does not include a display selling event.

Q. "Trucking - delivery/service by vehicle" means every person not having a fixed place of business within the City who makes wholesale or retail deliveries of goods or services by motor vehicle within the City or who maintains, installs, or repairs goods, wares, or merchandise or equipment inside the City, or who provides a similar service not otherwise covered.

R. "Vehicle for hire with driver" means any business conducted or carried on by any person who provides motor propelled vehicles used for the transportation of persons over the public streets and not upon rail or tracks which travel along a fixed route or the route is under the control of the passenger(s) being carried for compensation. Such vehicles include, but are not limited to, jitneys, chauffeured limousines, taxicabs, share a ride, or sightseeing vehicles.

S. "Vehicle for hire without driver" means any business conducted or carried on by any person who rents autos or other motor propelled vehicles for transportation of persons or property at rates per hour, per week, per month, or per trip. Such vehicles include, but are not limited to, automobiles, trucks, motorcycles, motorhomes, or pleasure vehicles. (ORD-24-0002 § 3, 2024; Ord. C-7438 § 2, 1996: Ord. C-7263 § 1, 1994: Ord. C-6627 § 2, 1989; Ord. C-6325 § 2, 1986: Ord. C-6259 § 1 (part), 1986)

DIVISION II. IMPOSITION OF BUSINESS LICENSE TAX

3.80.210 License and tax payment required.

There are hereby imposed upon the businesses, trades, professions, callings and occupations specified in this Chapter license taxes in the amounts hereinafter prescribed. It shall be unlawful for any person to transact and carry on any business, trade, profession, calling or occupation in the City without first having procured a license from said City to do so and paying the tax hereinafter prescribed and without complying with any and all applicable provisions of this Code, and every person conducting any such business in the City shall be required to obtain a business license hereunder.

This Section shall not be construed to require any person to obtain a license prior to doing business within the City if such requirement conflicts with applicable statutes of the United States or of the State of California.

Any person who engages in any business for which a business license is required, shall be liable for the amount of all taxes and penalties applicable from the date of commencement of the business, whether or not such person would have qualified for such business license; however, such payment shall not create any right for the person to remain in business.

All payments of business license tax received by the City, irrespective of any designation to the contrary by the taxpayer, shall be credited and applied first to any penalties and tax due for prior

years in which the tax was due but unpaid. (Ord. C-7783 § 2, 2002: Ord. C-6259 § 1 (part), 1986)

3.80.213 Tax on contract construction.

Every person engaged in the business of contract construction in the City of Long Beach shall pay an annual business license tax to the City consisting of a flat tax of two hundred forty-four dollars and fifty-eight cents ($244.58), plus an additional tax in the amount of twelve dollars and seventy cents ($12.70) for each employee of such business based on its average number of employees (based upon CPI base year 2000). (Ord. C-7783 § 3, 2002: Ord. C-6837 § 1, 1990: Ord. C-6259 § 1 (part), 1986)

3.80.216 Tax on manufacturing.

Every person engaged in the business of manufacturing in the City of Long Beach shall pay an annual business license tax to the City consisting of a flat tax of two hundred forty-four dollars and fifty-eight cents ($244.58), plus an additional tax in the amount of six dollars and thirty-five cents ($6.35) for each employee of such business based on its average number of employees (based upon CPI base year 2000). (Ord. C-7783 § 4, 2002: Ord. C-6837 § 2, 1990: Ord. C-6259 § 1 (part), 1986)

3.80.220 Tax on miscellaneous businesses.

Every person engaged in the business of miscellaneous business in the City of Long Beach shall pay an annual business license tax to the City consisting of a flat tax of two hundred forty-four dollars and fifty-eight cents ($244.58), plus an additional tax in the amount of six dollars and thirty-five cents ($6.35) for each employee of such business based on its average number of employees (based upon CPI base year 2000). (Ord. C-7783 § 5, 2002: Ord. C-6837 § 3, 1990: Ord. C-6259 § 1 (part), 1986)

3.80.221 Tax on oil production.

Notwithstanding any other provision of this Chapter 3.80, the provisions of this Section 3.80.221 and Section 3.80.223 shall apply to the business license tax on the business of oil production.

A. Every person conducting, managing or carrying on the business of oil production from any well located in the City, including the City when functioning in the capacity of a unit operator, shall pay an annual maximum business license tax to the City of thirty cents ($0.30) per barrel produced, subject to annual adjustments for inflation/deflation. In the event that the price per barrel on the monthly average of the daily WTI (West Texas Intermediate Crude Index) is reported in an amount less than twenty dollars ($20.00) for any month, the rate of this general tax on oil production as described above shall be temporarily suspended only for that same month. In the event that the WTI ceases to exist or otherwise becomes impractical to use, the City shall substitute an index which is reasonably comparable. For the purposes of this Section, the general tax shall be automatically adjusted on June 1st of each year, upward or downward, equivalent to the most recent change in the annual average of the Consumer Price Index as published by the United States Department of Labor for the Los Angeles-Riverside-Orange County, CA, area ("CPI"). For purposes of calculating the annual inflation/deflation factor under this Section, the base year shall be the year ended December 31, 2019. Rates shall first be adjusted on June 1, 2021, and annually thereafter, based upon the annually calculated change from the base year. The June 1, 2021 adjustment shall be for the change in the CPI for the year ending December 31, 2020, and the adjusted rate shall first be applied to the entire payment due on December 31, 2021.

B. The sum or sums paid shall be on a per fiscal year basis, payable quarterly. Production for the three (3) months immediately prior to the quarter month shall constitute the measurement of the amount due on or before the last day of the quarter month.

The applicant who fails to pay such production tax within the quarter month shall pay in addition to the taxes a penalty for nonpayment in the sum equal to twenty-five percent (25%) of the total amount on the first day of the month following the close of the calendar quarter. Additional penalties will be assessed in the following manner: ten percent (10%)

shall be added on the first day of each calendar month following the month of the imposition of the twenty-five percent (25%) penalty if the tax remains unpaid; up to a maximum of one hundred percent (100%) of the tax payable on the due date.

C. The person subject to the payment of the tax shall, before the business tax for each quarter becomes delinquent, file with the director of financial management a written statement setting forth the number of barrels of oil produced by each well during the pertinent three (3) month period of production upon which the tax due is to be calculated, and such person shall pay at such time the amount of the business tax computed upon the measure of the tax reported in the statement. The written statement shall be made upon a form prescribed by the director of financial management and shall include a declaration substantially as follows:

"I declare under penalty of making a false declaration that I am authorized to make this statement, and that to the best of my knowledge and belief it is a true, correct and complete statement made in good faith for the period stated, in compliance with the provisions of the Long Beach Municipal Code."

Such statements shall not be conclusive against the City as to the information set forth therein, nor shall the filing of a statement preclude the City from collecting by appropriate action any additional tax that is later determined to be due and payable.

D. For the purpose of this Section a well shall be deemed to be located in the City if the surface location of the well or the surface of the well itself, is located in the City regardless of where the hole of the well may be bottomed.

E. For the purpose of this Section "oil" has the meaning as defined in Section 12.04.300.

F. The payment of the license as provided in this Section shall permit the engaging in any of the following businesses without the payment of an additional business license tax: oil well, injection well, or water source well drilling or servicing operations; refining oil or petroleum products and producing the byproducts thereof; marketing, selling and distributing oil or any petroleum products or byproducts thereof at wholesale; or maintaining tankage in connection with any of the above business activities; except that nothing in this Section shall be deemed to apply to the operation of automobile filling/service stations.

G. REPEAL OR AMENDMENT OF SECTION. This Section may be repealed or amended by the City Council without a vote of the People of the City of Long Beach. However, as required by California Constitution Article XIIIC (Proposition 218), voter approval is required for any amendment or provision that would increase the maximum rate or methodology of any tax levied pursuant to this Section. The people of the City of Long Beach affirm that the following actions shall not constitute an increase of the rate or methodology of the general Oil Barrel Production (Barrel) Tax requiring subsequent voter approval:

(a) The restoration of the rate of the tax to a rate that is no higher than the maximum set by this voter-approved section, if the City Council has previously acted to reduce the rate of the tax;

(b) An action that interprets or clarifies the methodology of the tax, or any definition applicable to the tax, so long as interpretation or clarification (even if contrary to some prior interpretation or clarification) is not inconsistent with the language of this section;

(c) The establishment of a class of person or service that is exempt or excepted from the tax or the discontinuation of any such exemption or exception (other than the discontinuation of an exemption or exception explicitly set forth in this section); and

(d) Resuming collection of the tax imposed by this section, even if the City had, for some period of time, either suspended collection of the tax or otherwise failed to collect the tax, in whole or in part. (Measure US § 1, 2020; Ord. C-6751 § 1, 1990; Ord. C-6259 § 1 (part), 1986)

Editor's note—Section 5 of Measure US states: Pursuant to California Constitution Article XIIIC §(2)(b) and California Elections Code §9217, this Ordinance shall take effect only if approved by a

majority of the eligible voters of the City of Long Beach voting at the General Municipal Election to be held on November 3, 2020, and shall *become effective as of October 1, 2021*.

3.80.222 Police and Fire Public Safety Oil Production Act.

Notwithstanding any other provision of this Chapter, the provisions of this Section shall apply to the business of oil production, in addition to those provisions set forth in Sections 3.80.221, 3.80.223 and 3.80.226.

A. Every person conducting, managing or carrying on the business of oil production from any well located in the City, including the City when functioning in the capacity of a unit operator, shall pay a special tax to the City of twenty-five cents ($0.25) per barrel produced, subject to annual adjustments for inflation/deflation. In the event that the price per barrel on the monthly average of the daily WTI (West Texas Intermediate Crude Index) is reported in an amount less than twenty dollars ($20.00) for any month, the rate of this special tax on oil production as described above shall be temporarily suspended only for that same month. In the event that the WTI ceases to exist or otherwise becomes impractical to use, the City shall substitute an index which is reasonably comparable. For the purposes of this Section, the special tax shall be automatically adjusted on June 1st of each year, upward or downward, equivalent to the most recent change in the annual average of the Consumer Price Index as published by the United States Department of Labor for the Los Angeles-Riverside-Orange County, CA, area ("CPI"). For purposes of calculating the annual inflation/deflation factor under this Section, the base year shall be the year ended December 31, 2006. Rates shall first be adjusted on June 1, 2008, and annually thereafter, based upon the annually calculated change from the base year. The June 1, 2008 adjustment shall be for the change in the CPI for the year ending December 31, 2007, and the adjusted rate shall first be applied to the entire payment due on September 30, 2008.

B. The sum or sums shall be payable quarterly and concurrently with the business license tax established in Section 3.80.221. Production for the three (3) months immediately prior to the quarter month shall constitute the measurement of the amount due on or before the last day of the quarter month.

The applicant who fails to pay such special tax within the quarter month shall pay, in addition to the special tax and the tax and penalties described in Section 3.80.221, a penalty for nonpayment in the sum equal to twenty-five percent (25%) of the total amount of this special tax on the first day of the month following the close of the calendar quarter. Additional penalties will be assessed in the following manner: ten percent (10%) shall be added on the first day of each calendar month following the month of the imposition of the twenty-five percent (25%) penalty if the special tax remains unpaid; up to a maximum of one hundred percent (100%) of the special tax payable on the due date.

C. The same filing requirements set forth in Subsection 3.80.221.C shall apply in their entirety to taxes imposed pursuant to this Section.

D. For the purpose of this Section, a well shall be deemed to be located in the City if the surface location of the well or the surface of the well itself, is located in the City regardless of where the hole of the well may be bottomed.

E. For the purpose of this Section, "oil" has the meaning as defined in Section 12.04.300.

F. The payment of the special tax as provided in this Section and the tax set forth in Section 3.80.221 shall permit the engaging in any of the following businesses without the payment of an additional business license tax: oil well, injection well, or water source well drilling or servicing operations; refining oil or petroleum products and producing the byproducts thereof; marketing, selling and distributing oil or any petroleum products or byproducts thereof at wholesale; or maintaining tankage in connection with any of the above business activities; except that nothing in this Section shall be deemed to apply to the operation of

automobile filling/service stations. (Prop. H, 5-1-07, eff. 5-22-07)

3.80.223 Oil business—Unit operations.

A. In those situations where the City is serving in the capacity of a unit operator, and as such is required to pay the tax as provided in Section 3.80.221, the computed total amount of the tax due shall be paid by the City, as unit operator, and by its drilling and operating contractor in the proportion as determined by the pertinent provisions of the drilling and operating contract between the City and the contractor.

B. This Section shall, in its application both as to past collected or accrued and to future taxes, be deemed severable from Section 3.80.221 in that should all or any portion of this Section be held to be unlawful or unconstitutional the intention of the City is declared to be that the respective systems of taxation described in Section 3.80.221 are of independent significance and should remain independently in full force and effect. (Ord. C-6259 § 1 (part), 1986)

3.80.224 Special tax on oil production—Use of proceeds.

The special tax proceeds may only be used for Police Officers and Firefighters, and related costs including, but not limited to, equipment, facilities and training, all intended to ensure responses to public safety needs, natural and man-made disasters and possible acts of terrorism. (Prop. H, 5-1-07, eff. 5-22-07)

3.80.225 Special Police and Fire Public Safety Oil Production Act fund.

A. There is established a permanent special fund entitled the "Police and Fire Public Safety Oil Production Act fund" (hereinafter the "safety fund"). Money collected pursuant to Section 3.80.222 shall be deposited into said safety fund for public safety purposes, as described in Section 3.80.224 above. Said special fund shall be used exclusively for the purposes for which the special tax is imposed, and for no other purposes. Nothing in this Section shall prevent disbursements from this special fund to reimburse the general fund and/or other funds if, and only if, money has been advanced from those other funds to pay for the uses provided in Section 3.80.224.

B. Any money raised by the special tax levied pursuant to Section 3.80.222 above, including any interest accrued thereon, that remains unencumbered at the end of any fiscal year may only be used in succeeding fiscal years for the purposes stated in Section 3.80.224. (Prop. H, 5-1-07, eff. 5-22-07)

3.80.226 Tax on professions.

Every person engaged in the business of professions in the City of Long Beach shall pay an annual business license tax to the City consisting of a flat tax of two hundred forty-four dollars and fifty-eight cents ($244.58), plus an additional tax in the amount of nineteen dollars and five cents ($19.05) for each employee of such business based on its average number of employees (based upon CPI base year 2000). (Ord. C-7783 § 6, 2002: Ord. C-6837 § 4, 1990: Ord. C-6259 § 1 (part), 1986)

3.80.227 Independent audit.

The City Auditor shall annually cause an independent financial audit to be conducted and a report to be prepared, which shall be filed with the City Council no later than January 31st of each year for the prior fiscal year, containing information regarding the amount of special tax revenue collected and expended on purposes set forth in Section 3.80.224 above, the status of any projects and programs funded by such tax revenue, and the amount of unspent moneys on deposit that were carried-over into the current fiscal year. (Prop. H, 5-1-07, eff. 5-22-07)

3.80.230 Tax on recreation and entertainment.

Every person engaged in the business of recreation and entertainment in the City of Long Beach shall pay an annual business license tax to the City consisting of a flat tax of two hundred forty-four dollars and fifty-eight cents ($244.58), plus an additional tax in the amount of twelve

dollars and seventy cents ($12.70) for each employee of such business based on its average number of employees (based upon CPI base year 2000). (Ord. C-7783 § 7, 2002: Ord. C-6837 § 5, 1990: Ord. C-6259 § 1 (part), 1986)

3.80.233 Tax on rental of residential property.

A. Every person engaged in the business of the rental of residential property consisting of any residential unit that is one (1) of four (4) or more such units, inclusive of owner occupied units or rooms, under one (1) roof or on one (1) parcel, shall pay an annual business tax to the City consisting of fifty-two dollars and eighty-five cents ($52.85) for each parcel containing such units and an additional twenty-three dollars and twenty cents ($23.20) for each unit thereon. This Section shall not apply to the rental of any residential unit or room that is one (1) of three (3) or less such units or rooms, inclusive of owner occupied units under one (1) roof or on one (1) parcel (based upon CPI base year 2000).

B. In residential property of seven (7) or less units subject to taxation under Subsection A of this Section, the per unit charge of twenty-three dollars and twenty cents ($23.20) for one (1) owner occupied unit may be excluded from calculating the total tax due under this Section. (Ord. C-7783 § 8, 2002: Ord. C-7067 § 1, 1993; Ord. C-6986 § 2, 1992: Ord. C-6901 § 1, 1991: Ord. C-6837 § 6, 1990: Ord. C-6325 § 3, 1986: Ord. C-6259 § 1 (part), 1986)

3.80.236 Tax on rental of nonresidential property.

Every person engaged in the business of rental of nonresidential property shall pay an annual business license tax to the City consisting of two and seven-tenths ($2^{7}/_{10}$) cents for each square foot of rental space (based upon CPI base year 2000). (Ord. C-7783 § 9, 2002: Ord. C-6837 § 7, 1990: Ord. C-6259 § 1 (part), 1986)

3.80.240 Tax on retailing.

Every person engaged in the business of retailing in the City shall pay an annual business license tax to the City consisting of a flat tax of two hundred forty-four dollars and fifty-eight cents ($244.58), plus an additional tax in the amount of six dollars and thirty-five cents ($6.35) for each employee of such business based on its average number of employees (based upon CPI base year 2000). (Ord. C-7783 § 10, 2002: Ord. C-6837 § 8, 1990: Ord. C-6259 § 1 (part), 1986)

3.80.243 Tax on services.

A. Every person engaged in the business of services in the City shall pay an annual business license tax to the City consisting of a flat tax of two hundred forty-four dollars and fifty-eight cents ($244.58), plus an additional tax in the amount of twelve dollars and seventy cents ($12.70) for each employee of such business based on its average number of employees (based upon CPI base year 2000).

B. Every independent contractor engaged in the business of services which are secondary to another service business located at the same address shall pay an annual business license tax to the City consisting of a flat tax of one hundred fifty dollars ($150.00), plus an additional tax in the amount of twelve dollars and seventy cents ($12.70) for each employee of such business based on its average number of employees (based upon CPI base year 2000). The independent contractor's business shall be customarily incidental and/or necessarily related to the principal business in order to be eligible for this lesser tax rate. (Ord. C-7783 § 11, 2002: Ord. C-6837 § 9, 1990: Ord. C-6259 § 1 (part), 1986)

3.80.246 Tax on vending operations.

Every person engaged in the business of vending operations shall pay an annual business tax to the City consisting of four dollars and ninety-three cents ($4.93) for each one thousand dollars ($1,000.00) or part thereof of gross receipts, but in no event less than one hundred four dollars and forty cents ($104.40). (Ord. C-6837 § 10, 1990: Ord. C-6259 § 1 (part), 1986)

3.80.250 Tax on wholesaling.

Every person engaged in the business of wholesaling in the City shall pay an annual business

license tax to the City consisting of a flat tax of two hundred forty-four dollars and fifty-eight cents ($244.58), plus an additional tax in the amount of six dollars and thirty-five cents ($6.35) for each employee of such business based on its average number of employees (based upon CPI base year 2000). (Ord. C-7783 § 12, 2002: Ord. C-6837 § 11, 1990: Ord. C-6259 § 1 (part), 1986)

3.80.253 Taxes on selected individual businesses.

Every person engaged in one (1) or more of the individual businesses set forth in this Section shall pay a business license tax to the City as is herein provided.

A. Ambulance, wheelchair van, gurney van - ninety dollars and fifty-eight cents ($90.58) for each vehicle annually (based upon CPI base year 2000);

B. Amusement skill game - four hundred seven dollars and sixty-six cents ($407.66) for each machine or seat annually (based upon CPI base year 2000);

C. Billiards, pool, bowling, and ping pong - ninety dollars and fifty-eight cents ($90.58) for each game, device, lane, or table annually (based upon CPI base year 2000);

D. Booth selling - as defined in Subsection 3.80.180.D, the sum of thirty-six dollars and twenty-one cents ($36.21) each day for each booth (based upon CPI base year 2000);

E. Consignment business - fifty-six dollars and nineteen cents ($56.19) for each location where merchandise is placed for sale, except that the tax shall not apply to any person selling only three (3) or less items in a consecutive twelve (12) month period (based upon CPI base year 2000);

F. Display/selling booth space in connection with display or selling event as defined in Subsection 3.80.180.F - one dollar and eighty-one cents ($1.81) each day for each booth. The licensee shall provide the director of financial management with a listing of vendors who display, sell, offer for sale or exchange, or provide a personal service at a display/selling event. The report shall be filed and fees paid to the Director no later than three (3) working days after the close of the event (based upon CPI base year 2000);

G. Farmer's market - fifty-four dollars and thirty-four cents ($54.34) for each booth/stall/vendor annually (based upon CPI base year 2000);

H. Food products - mobile - three hundred eight dollars and one cent ($308.01) for each mobile food unit annually (based upon CPI base year 2000);

I. Home occupation - one hundred fifty dollars ($150.00) and six dollars and thirty-five cents ($6.35) for each employee permitted by Section 21.51.235 annually (based upon CPI base year 2000);

J. Junk collector - one hundred sixty-three dollars and seven cents ($163.07) for each vehicle annually (based upon CPI base year 2000);

K. Motion picture or live theater - fifty-five cents ($0.55) for each seat in such theater annually (based upon CPI base year 2000);

L. Peddling - nine hundred five dollars and eighty cents ($905.80) annually or ninety dollars and fifty-eight cents ($90.58) each day (based upon CPI base year 2000);

M. Pedicab - one hundred sixty-three dollars and seven cents ($163.07) for the first pedicab and fourteen dollars and sixty-three cents ($14.63) for each additional pedicab annually (based upon CPI base year 2000);

N. Shoeshine stand - ninety dollars and fifty-eight cents ($90.58) for each stand annually (based upon CPI base year 2000);

O. Sidewalk vendor - three hundred dollars ($300.00) for each conveyance (i.e., pushcart, stand, display, pedal-driven cart, wagon, showcase, rack, or other nonmotorized conveyance) or, if no conveyance is used, each person, annually (based upon CPI base year 2024);

P. Swap meet - two thousand seven hundred seventeen dollars and seventy-five cents ($2,717.75) annually and one dollar and eighty-one cents ($1.81) for each stall for each day of a sales meet (based upon CPI base year 2000);

Q. Trucking delivery/service by vehicle - one hundred sixty-three dollars and seven cents ($163.07) for each vehicle annually (based upon CPI base year 2000);

R. Vehicle for hire with driver (limousines, share ride, jitney, taxi) - three hundred forty-four dollars and twenty-seven cents ($344.27) for each vehicle annually (based upon CPI base year 2000);

S. Vehicles for hire without driver - ninety dollars and fifty-eight cents ($90.58) for each vehicle annually (based upon CPI base year 2000); and

T. Bed and breakfast establishment - two hundred forty-four dollars and fifty-eight cents ($244.58) for each establishment annually plus twelve dollars and seventy cents ($12.70) for each employee of such establishment based on its average number of employees (based upon CPI base year 2000). (ORD-24-0002 § 4, 2024; Ord. C-7783 § 13, 2002: Ord. C-7438 § 3, 1996: Ord. C-7263 § 2, 1994: Ord. C-6837 § 12, 1990: Ord. C-6627 § 3, 1989; Ord. C-6325 § 4, 1986: Ord. C-6259 § 1 (part), 1986)

3.80.256 Apportionment of payment of tax.

For purposes of apportionment as may be required by law and for purposes of administration and enforcement of this Chapter, the Director may from time to time promulgate administrative rules and regulations for a business subject to the business license tax under this Chapter that can demonstrate to the satisfaction of the Director that it will be doing business in the City for only a portion of a year. (Ord. C-7783 § 14, 2002: Ord. C-6259 § 1 (part), 1986)

3.80.260 Reserved.

Editor's note—Measure MA § 1, adopted Nov. 8, 2016, repealed § 3.80.260 entitled "Marijuana Businesses", which derived from: Measure B, adopted Nov. 2, 2010, eff. Dec. 17, 2010; and Measure MM § 1, adopted Nov. 8, 2016. See § 3.80.261 for similar provisions.

3.80.261 Marijuana Businesses.

A. Definitions. For purposes of this Section, the following terms shall be defined as follows:

1. "Equity Business" means a cannabis business where a minimum of fifty-one percent (51%) ownership in the cannabis business is held by one equity applicant or, if the cannabis business will be held by a group of applicants in the Equity Program, any one (1) of the equity applicants must hold majority ownership interest in the cannabis business.

2. "Gross Receipts" shall mean any transfer of title or possession, exchange or barter, conditional or otherwise, in any manner or by any means whatsoever, of tangible personal property for a consideration including any monetary consideration for marijuana whatsoever, including, but not limited to, membership dues, reimbursements or the total amount of cash or in-kind contributions, including all operating costs related to the growth, cultivation, processing, storage, delivery or provision of marijuana or any transaction related thereto. The term "Gross Receipts" shall also include the total amount of the sale price of all sales, the total amount charged or received for the performance of any act, service or employment of whatever nature it may be, whether or not such service, act or employment is done as a part of or in connection with the sale of goods, wares, merchandise, for which a charge is made or credit allowed, including all refunds, cash credits and properties of any amount or nature, any amount for which credit is allowed by the seller to the purchaser without any deduction therefrom, on account of the cost of the property sold, the cost of materials used, the labor or service cost, interest paid or payable, losses, or any other expense whatsoever; provided that cash discounts allowed or payment on sales shall not be included. "Gross Receipts" shall not include the amount of any federal tax imposed on or with respect to retail sales whether imposed upon the retailer or the consumer and regardless of whether or not the amount of federal tax is stated to customers as a separate charge, or any California state, city or city and county sales or use tax required by law to be included in or added to the purchase price and collected from the consumer or purchaser, or such part of the sales price of any property previously sold and returned by the purchaser to the seller which is refunded by the seller by way of cash or

credit allowances given or taken as part payment on any property so accepted for resale. "Gross Receipts" shall be calculated without any deduction on account of any of the following:

a. The cost of tangible property sold or bartered;

b. The cost of materials or products used, labor or service cost, interest paid, losses, or other expense; or

c. The cost of transportation of the marijuana, or other property or product.

3. "Income Tax Exempt Non-Profit Organization" shall mean any association, corporation or other entity that is exempt from taxation measured by income or gross receipts under Article XIII, Section 26 of the California Constitution.

4. "Marijuana" shall mean all parts of the plant Cannabis sativa Linnaeus, Cannabis indica, or Cannabis ruderalis, whether growing or not; the seeds thereof; the resin; whether crude or purified, extracted from any part of the plant; and every compound, manufacture, salt, derivative, mixture, or preparation of the plant, its seeds, or resin. "Marijuana" also means the separated resin, whether crude or purified, obtained from marijuana. "Marijuana" also means the term as defined in California Health and Safety Code Section 11018 and is not limited to medical marijuana.

5. "Marijuana Business" shall mean any business, whether operating for-profit or not-for-profit, which performs any of the following activities: marijuana cultivation, delivering, distribution, processing, transporting, dispensing, selling at retail or wholesale, manufacturing, compounding, converting, preparing, storing, packaging, or testing. "Marijuana Business" includes both a Medical Marijuana Business and Non-Medical Marijuana Business. "Marijuana Business" does not include personal medical marijuana cultivation that is specifically permitted by state law or the Long Beach Municipal Code.

6. "Marijuana Cultivation" shall mean the seeding, planting, watering, warming, cooling, growing, cultivating, harvesting, drying, curing, grading or trimming of marijuana.

7. "Marijuana Delivery" shall mean the commercial transfer of marijuana or marijuana products from a marijuana business to a retail or wholesale customer.

8. "Marijuana Distribution" or "Marijuana Transport" shall mean any activity involving the commercial procurement, sale, transfer and/or transport of marijuana and marijuana products from one Marijuana Business to another Marijuana Business for purposes authorized pursuant to state law or the Long Beach Municipal Code.

9. "Marijuana Processing" shall mean any activity involving the manufacturing, production, preparation, propagation, processing, converting, or compounding of raw marijuana or marijuana products either directly or indirectly or by extraction methods, or independently by means of chemical synthesis at a fixed location that packages or repackages marijuana or marijuana products or labels, packages or relabels its container.

10. "Marijuana Product" shall mean marijuana that has undergone a process whereby the raw agricultural product has been transformed into a concentrate, an edible product, or a topical product. "Marijuana Product" also means marijuana products as defined by California Health and Safety Code Section 11018.1 and is not limited to medical marijuana products.

11. "Marijuana Retail Sale" shall mean any activity involving the retail sale to customers of marijuana, marijuana products, or devices for the use of marijuana or marijuana products, either individually or in any combination, including marijuana delivery as part of a retail sale.

12. "Marijuana Testing" means any activity involving the testing of marijuana or marijuana products by a facility that is both of the following:

a. Accredited by an accrediting body that is independent from all other persons involved in the marijuana industry in the state; and

b. Registered with the California State Department of Public Health.

13. "Medical Marijuana Business" shall mean any Marijuana Business which performs marijuana cultivation, delivering, distribution, processing, transporting, dispensing, selling at retail or

wholesale, manufacturing, compounding, converting, preparing, storing, packaging, or testing, for the ultimate consumption or use of marijuana by qualified patients in accordance with California Health and Safety Code Sections 11362.5 et seq., the California Medical Marijuana Regulation and Safety Act ("MMRSA"), and any other State law authorizing activities related to the medical use of marijuana.

14. "Non-Medical Marijuana Business" shall mean any business which performs marijuana cultivation, delivering, distribution, processing, transporting, dispensing, selling at retail or wholesale, manufacturing, compounding, converting, preparing, storing, packaging, or testing, for any other purpose than as a Medical Marijuana Business.

15. "Personal Medical Marijuana Cultivation" means cultivation by a qualified patient who cultivates one hundred (100) square feet total canopy area or less of marijuana exclusively for his or her personal medical use but who does not provide, donate, sell, or distribute marijuana to any other person. "Personal Medical Marijuana Cultivation" also includes cultivation by a primary caregiver who cultivates one hundred (100) square feet total canopy area or less of marijuana exclusively for the personal medical purposes of no more than five (5) specified qualified patients for whom he or she is the primary caregiver, but who does not receive remuneration for these activities except for compensation in full compliance with California Health and Safety Code Section 11362.765(c), as it may be amended.

16. "Square Foot under Cultivation" or "Square Footage under Cultivation" shall mean the actual amount of canopy (measured by the aggregate area of vegetative growth of live marijuana plants on the premises including the area occupied by vertically and horizontally stacked canopies) that is limited by the maximum amount a marijuana business is authorized to cultivate by either a City permit or license, or by a state license in the absence of a City permit or license, not deducting for unutilized square footage.

B. Business License Tax.

1. Every Marijuana Business whether organized as not-for-profit or for-profit, shall pay a business license tax in accordance with Chapter 3.80 of this Code and this Section.

2. For the purposes of this Section, a Marijuana Business is considered to be a business as that term is defined in Long Beach Municipal Code Section 3.80.133.

3. For the purposes of this Section, a Marijuana Business is not considered to be a religious or charitable organization as defined in Long Beach Municipal Code Section 3.80.320 (Exemption - Religious and charitable organizations).

4. The business tax set forth in this section is a general tax, the revenues from which shall be deposited into the City's general fund and may be expended for any valid public purpose of the City.

C. Business License Tax Rates.

1. Every medical marijuana business engaged in marijuana retail sale or delivery within the City shall pay a business tax at a rate of up to eight percent (8%) of gross receipts, except equity businesses who meet the eligibility criteria as stated in Section 5.92.1615, shall pay a business tax at half the rate set for non-equity businesses. The tax shall be initially set at a rate of six percent (6%). The tax under this paragraph shall not be increased on medical marijuana businesses unless and until the City Council by ordinance takes action, and the tax rate shall not exceed eight percent (8%) of gross receipts.

2. Every non-medical marijuana business engaged in marijuana retail sale or delivery within the City shall pay a business tax at a rate of up to twelve percent (12%) of gross receipts, except equity businesses who meet the eligibility criteria as stated in Section 5.92.1615, shall pay a business tax at half the rate set for non-equity businesses. The tax which was initially set at a rate of eight percent (8%) is reduced and set at a rate of seven percent (7%). The tax under this paragraph shall not be increased on non-medical marijuana businesses unless and until the City Council by ordinance takes action, and the tax rate shall not exceed twelve percent (12%) of gross receipts.

3. If a marijuana business is engaged in retail sales or delivery of both medical marijuana and a non-medical marijuana, it shall pay the business tax set forth in paragraph C.2., unless the marijuana business identifies to the City, by reasonable and verifiable standards, the portions of its retail sales activities that are tied to medical marijuana and those that are tied to non-medical marijuana, through the marijuana business' books and records kept in the regular course of business, and in accordance with generally accepted accounting principles, and not specifically created and maintained for tax purposes. The marijuana business has the burden of proving the proper apportionment of taxes under this paragraph C.3.

4. Every marijuana business, whether medical or non-medical, that is engaged in marijuana distribution, transport, processing, or testing within the City, shall pay business tax at a rate of up to eight percent (8%) of gross receipts. The tax which was initially set at a rate of six percent (6%), is reduced and set at a rate of one percent (1%). The tax under this section shall not be increased on marijuana businesses unless and until the City Council by ordinance takes action, and the tax rate shall not exceed eight percent (8%) of gross receipts. If a marijuana business that is engaged in marijuana distribution, transport, processing, or testing, is also engaged in marijuana retail sale or delivery of the same marijuana and marijuana products, then it shall pay the business taxes set forth in paragraphs C.1. or C.2., as applicable, for retail sale or delivery of any marijuana or marijuana products and is not required to pay the business taxes set forth in this paragraph for marijuana distribution, transport, processing, or testing for the same marijuana and marijuana products. The marijuana business has the burden of proving that the marijuana or marijuana products involved in distribution, transport, processing, or testing are the same.

5. In addition to the taxes set forth in paragraphs C.1., C.2., and C.4., every marijuana business, whether medical or non-medical, engaged in marijuana cultivation shall pay a tax of up to fifteen dollars ($15.00) per square foot under cultivation, except equity businesses who meet the eligibility criteria as stated in Section 5.92.1615, shall pay a business tax at half the rate set for non-equity businesses. The tax which was initially set at a rate of twelve dollars ($12.00) per square foot under cultivation and increased to fourteen dollars and ninety-six cents ($14.96) per annual adjustment as stipulated in paragraph E., is set to thirteen dollars and nine cents ($13.09). The City Council may by ordinance increase any such tax rate from time to time, not to exceed the maximum tax rate of fifteen dollars ($15.00) per square foot under cultivation.

6. Notwithstanding the maximum tax rates imposed in paragraphs C.1., C.2., C.4. and C.5., the City Council may in its discretion at any time by ordinance implement a lower tax rate, as defined in such ordinance, subject to the maximum rates set forth in C.1., C.2., C.4. and C.5. City Council may subsequently in its discretion, at any time by ordinance, implement a higher tax rate, subject to the maximum rates set forth in C.1., C.2., C.4. and C.5., and such increase does not constitute a tax increase for which voter approval is required Article XIII C of the California Constitution.

7. All marijuana businesses shall pay a minimum tax of one thousand dollars ($1,000.00) annually.

D. Modification, Repeal or Amendment. The City Council may repeal the ordinance codified in this Section, or amend it in a manner which does not result in an increase in the tax or taxes imposed herein, without further voter approval. If the City Council repeals said ordinance or any provision of this Section, it may subsequently reenact it without voter approval, as long as the reenacted ordinance or Section does not result in an increase in the tax or taxes beyond the maximum rate or methodology imposed herein.

E. Annual Adjustment. The taxes imposed by paragraph C.5 shall be adjusted annually by the Director of Financial Management. Beginning on October 1, 2018, and on October 1 of each succeeding year thereafter, the amount of each tax imposed by paragraph C.5 shall be adjusted equiv-

alent to the most recent change in the annual average of the Consumer Price Index ("CPI") for all urban consumers in the Los Angeles-Riverside-Orange County areas as published by the United States Government Bureau of Labor Statistics; however no adjustment shall decrease any tax imposed by paragraph C.5. For the purposes of calculating the annual adjustment factor under paragraph C.5, the base year shall be that year ending with December 31, 2016. Rates shall next be adjusted on October 1, 2018, and annually thereafter, based on the annually calculated change from the base year. The October 1, 2018, adjustment shall be the change in the average CPI for the year ending December 31, 2017, compared to the base year ending December 31, 2016.

F. Pilot Tax Program. Every medical and non-medical marijuana business engaged in cultivation and non-medical marijuana business engaged in retail sale or delivery, is eligible to apply for the Pilot Tax Credit Program to receive a tax credit of 3% upon, meeting the good standing requirements and eligibility criteria set by City Council. Under no circumstances may a tax credit result in tax at a rate less than two percent (2%).

G. Administration. The City Manager, or designee, and/or the City Council by ordinance, may promulgate regulations to implement and administer this Section including, but not limited to regulations allowing Marijuana Businesses to report and or remit taxes more or less frequently than monthly. The City Manager shall provide no less than annually a report to the City Council detailing annual expenditures.

H. Reporting and Remittance. In order to aid in the City's collection of taxes due under this Section and to ensure that all Marijuana Businesses are taxed consistently to the best of the City's ability, beginning as set forth in Section M, below, and monthly thereafter, each Marijuana Business shall report to the City any Gross Receipts received during the reporting period and shall likewise remit to the City the taxes due and owing during said period. For purposes of this Section, taxes shall begin to accrue on the date that a person or entity first receives a business license or other permit to operate as a Marijuana Business or Cultivation Site. Square Footage payments shall be made annually at the beginning of the calendar year and should be based on the square footage that the marijuana business is authorized to cultivate by either a City permit or license, or by a state license in the absence of a City permit or license, not deducting for unutilized square footage, pro-rated based on the number of months of operation.

I. Delinquent date—Penalties. Any individual or entity who fails to pay the taxes required by this Section within thirty (30) days after the due date shall pay in addition to the taxes a penalty for nonpayment in a sum equal to twenty-five percent (25%) of the total amount due. Additional penalties will be assessed in the following manner: ten percent (10%) shall be added on the first day of each calendar month following the month of the imposition of the twenty-five percent (25%) penalty if the tax remains unpaid; up to a maximum of one hundred percent (100%) of the tax payable on the due date. Receipt of the tax payment in the office shall govern the determination of whether the tax is delinquent. Postmarks will not be accepted as adequate proof of a timely payment.

J. Records Inspection. Whenever it is necessary to examine any books or records, including tax returns, of any Marijuana Business or Cultivation Site in the City to ascertain the amount of any tax due pursuant to this Section, the City shall have the power and authority to examine such necessary books and records at any reasonable time including, but not limited to, during normal business hours. Records must be maintained for no less than seven (7) years.

K. Suspension, Revocation and Appeal. The provisions of Sections 3.80.429.1 (Suspension or Revocation) and 3.80.429.5 (Appeal of License Revocation) shall apply in the case of Marijuana Businesses or Cultivation Sites governed by this Section.

L. Application of Provisions. No business license permit issued under the provisions of this Code, or the payment of any tax required under the provisions of this Code shall be construed as

authorizing the conduct or continuance of any illegal business or of a legal business in an illegal manner. Nothing in this Section implies or authorizes that any activity connected with the distribution or possession of cannabis is legal unless otherwise authorized and allowed by California and federal law. Nothing in this Section shall be applied or construed as authorizing the sale of marijuana.

M. Operative Date. This ordinance establishing a marijuana business tax shall only become operative: 1) if Chapter 5.89 of the Long Beach Municipal Code (banning marijuana businesses in the City of Long Beach) is repealed; and 2) if a regulatory scheme to permit marijuana businesses within the City is adopted. The tax shall become effective on the effective date of the regulatory ordinance as provided by law. (ORD-24-0009 § 1, 2024; ORD-23-0032 §§ 1, 2, 2023; ORD-20-0001 § 1, 2020; Measure MA § 2, 11-8-2016; Measure MM § 2, 11-6-2016; Measure A, 4-8-2014, eff. 5-23-2014)

DIVISION III. EXCLUSIONS AND EXEMPTIONS

3.80.310 Exclusions designated.

A. Except as may be otherwise specifically provided in this Chapter, the terms hereof shall not be deemed or construed to apply to any of the following businesses engaged in by any of the following persons:

1. Banks, including national banking associations to the extent provided by Article XIII, Section 16, Subdivision 1(a) of the State Constitution;

2. Insurance companies and associations, to the extent provided by Article XIII, Section 16, Subdivision 1(a) of the State Constitution;

3. Insurance companies and associations, to the extent provided by Article XIII, Section 14 of the State Constitution;

4. Any person whom the City is not authorized to license for revenue purposes only because of any law or Constitution of the United States or the State of California.

B. The Director of Financial Management may require the filing of a verified statement from any person claiming to be excluded by the provisions of this Section, which statement shall set forth all facts upon which the exclusion is claimed. (Ord. C-6259 § 1 (part), 1986)

3.80.320 Exemption—Religious and charitable organizations.

Religious, charitable, educational, fraternal and philanthropical organizations operated not for a profit shall be exempt from the payment of any license tax provided in this Chapter. In order to establish eligibility for such exemption, each organization shall file with the Director of Financial Management proof of exemption from federal taxes in a form satisfactory to the Director. Any such organizations operating a particular business activity for profit, however, shall pay a license tax equal to one-half (1/2) of the regular business license tax for that particular business activity. (Ord. C-6325 § 5, 1986: Ord. C-6259 § 1 (part), 1986)

3.80.323 Exemption—Cultural pursuits, minors doing yard work.

The provisions of this Chapter with reference to the imposition and collection of a license tax for the privilege of operating in the City certain businesses, professions, callings or occupations shall have no application to the following:

A. The teaching of the cultural pursuits of music, both vocal and instrumental, drama, elocution, art, and parliamentary procedure;

B. Nothing in this Chapter shall be construed as requiring the payment of a license tax by a natural person nineteen (19) years of age, or under, solely because he engaged in the business of lawn mowing and yard maintenance work, nor shall said person be required to pay a license tax for any vehicle used for transporting equipment used by him in the carrying on of such business. (Ord. C-6325 § 6, 1986: Ord. C-6259 § 1 (part), 1986)

3.80.326 Exemption—Disabled veteran.

A. For the purpose of this Chapter, "veteran" means and includes every person honorably dis-

charged from any branch of the Armed Forces, including nurses serving with such Armed Forces of the United States and qualified by the veterans administration as a veteran.

B. Every disabled veteran whose disability has been caused by military service, who is physically unable to obtain a livelihood by manual labor, who is drawing compensation or a pension from the government of the United States for such disability and who has been a bona fide resident of the City for a period of at least sixty (60) days shall be issued a license to carry on any business or pursuit specified in this Title without payment of the license tax or fee required therefor; provided, however, that no more than one (1) such license shall be issued to any disabled veteran during any one (1) year and provided that such disabled veteran makes application as set forth in Section 3.80.330.

C. In the event any veteran licensee fails to claim annually the exemption, he or she shall forfeit his or her right to such claim of exemption and shall be required to pay the regular license tax or fee, plus penalties provided for the respective business or pursuit in which he or she is engaged. (Ord. C-6259 § 1 (part), 1986)

3.80.327 Exemption—Private family daycare home.

A. For the purpose of this Chapter, "private family daycare home" means and includes any residence used for the purpose of providing daycare for fourteen (14) or fewer children, in the provider's own home, for periods of less than twenty-four (24) hours per day, and is either a large family daycare home or a small family daycare home, which is licensed by the State of California Department of Social Services for that purpose.

B. Any private family daycare home shall be exempt from obtaining a business license and/or paying any taxes or fees. (ORD-20-0004 § 1, 2020; Ord. C-6478 § 1, 1988)

3.80.330 Exemptions—Applications and conditions of issuance.

Any person desiring to claim exemptions under Section 3.80.320, Section 3.80.326 or Section 3.80.327 from the payment of a license tax shall make application therefor upon forms prescribed by the Director of Financial Management and shall furnish such information and submit such affidavits as may be required. Upon determination being made that the applicant is entitled to exemption from the payment of license taxes for any reason set forth in this Chapter, the Director of Financial Management shall issue a license to such person which shall show upon its face that the license tax is exempt from part or all of the tax. (Ord. C-6478 § 2, 1988: Ord. C-6325 § 7, 1986: Ord. C-6259 § 1 (part), 1986)

3.80.340 Exemptions—Grounds for revocation, notice and rights of hearing and appeal.

The Director of Financial Management may revoke any free license granted pursuant to the provisions of this Chapter upon information that the licensee is not entitled to an exemption from payment of a license tax on the business for which such license is granted. Notice of revocation shall be given in the same manner and within the same time as is provided for notices of assessment in Sections 3.80.443 through 3.80.445, and the licensee shall have the same right of hearing and of appeal as is provided in Section 3.80.429.5. (Ord. C-6259 § 1 (part), 1986)

DIVISION IV. ADMINISTRATION, ENFORCEMENT AND PENALTIES

Subdivision 1. General

3.80.410 Duties of Director of Financial Management and Chief of Police.

It shall be the duty of the Director of Financial Management, and he is hereby directed, to administer and enforce each and all of the provisions of this Chapter, and the Chief of Police shall render such assistance in the enforcement of this Chapter as may from time to time be required by the Director of Financial Management. (Ord. C-6259 § 1 (part), 1986)

Subdivision 2. Application and Administration

3.80.420.1 Application—Required.

Each applicant for a business license shall file a written statement with the City upon prescribed forms indicating the type of business activity to be conducted, officers of the firm, and such further information as may be deemed necessary by the Director of Financial Management. (Ord. C-6259 § 1 (part), 1986)

3.80.420.5 Separate license for each place of business—Exception for booth selling and independent contractors.

A. A separate license shall be obtained for each branch establishment or separate office or place for carrying on any business or pursuit within the City and the amount thereof, unless otherwise specified, shall be equal to the amount specified for carrying on the original business or pursuit.

B. Independent contractors licensed from multiple locations within the City shall only pay a business license tax for one (1) location in the amount specified for carrying on such business pursuit. Additional locations within the City, for the same independent contractor, shall be exempt from paying a business license tax.

C. This Section shall not be construed to require any existing business licensed at a fixed location within the City to obtain an additional license for conducting the same type of business at a different location as booth selling, provided that any such business subject to the provisions of Title 5 of this Code shall comply with all applicable requirements of that Title 5 and shall notify the Police Department of such booth selling. (ORD-20-0003 § 1, 2020; Ord. C-7191 § 1, 1994: Ord. C-6259 § 1 (part), 1986)

3.80.420.6 Alternative treatment for multiple businesses at one location.

Whenever a person engages at the same location in two (2) or more businesses which are taxed on the basis of the number of employees under different provisions of this Chapter, such person may, as an alternative to the normal method of calculating his license fees, elect to combine all such employees and pay a tax determined by applying to those employees the highest per employee tax rate of the activities taxed and, additionally, the sum of each flat rate tax increment applicable to each of the businesses engaged in at the location. (Ord. C-6259 § 1 (part), 1986)

3.80.420.7 Declaration for issuance of first license.

Upon a person's making application for the first license to be issued for a new established business, he shall furnish to the Director of Financial Management, for guidance in ascertaining the amount of license to be paid by the applicant, a written statement upon a form provided by the Director of Financial Management setting forth such information as may be therein required and as may be necessary to properly determine the amount of the license to be paid by the applicant.

If the amount of the license to be paid by the applicant is based upon the average number of persons employed or upon the gross receipts of his business, he shall estimate the average number of persons to be employed in his business, or the gross receipts of his business, as the case may be, for the period to be covered by the license to be issued. Such estimate, if accepted by the Director of Financial Management as a reasonable one, shall be used in determining the amount of license to be paid by the applicant; provided, however, the amount of the license so determined shall be tentative only, and such person shall, within thirty (30) days after the expiration of the period for which such license was issued furnish the said Director with a statement, upon a form furnished by the Director, showing the exact average number of persons employed in such business, or the exact gross receipts of such business, as the case may be, during the period of such license, and the license for such period shall be finally ascertained and paid in the manner provided by this Chapter for the ascertaining and paying of renewal of licenses for other businesses, after deducting from the payment found to be due the amount paid at the time such first license was issued.

No license shall be issued to any such person for the same or any other business until such person shall have furnished to it the written statement and paid the license as hereinabove required.

All statements required to be filed under this Section shall include a declaration substantially as follows:

"*I swear under penalty of perjury that the statements herein are true and correct.*"

(Ord. C-6259 § 1 (part), 1986)

3.80.420.8 Declaration for license renewal.

A. Every person subject to a business license tax under this Chapter shall, before the license expires and becomes delinquent, file with the Director of Financial Management a written statement setting forth the then applicable factor or factors that constitute the measure of the tax, together with such other information as shall be required by the Director to enable administration of the provisions of this Chapter, and shall pay at such time the amount of the tax computed thereon.

B. The written statement provided for herein shall be on a form prescribed by the Director of Financial Management and shall include a declaration substantially as follows:

"*I swear under penalty of perjury that the statements herein are true and correct.*"

(Ord. C-6259 § 1 (part), 1986)

3.80.421.1 Application—Investigation.

A. The Director shall refer such application to the appropriate departments of the City in order that it may be ascertained whether the business proposed to be conducted or the premises in which it is proposed to locate such business will comply with applicable fire, building safety, zoning, health and other laws and regulations.

B. The Director may issue a conditional license under this Chapter for the applicant to conduct business during the investigation period if: all necessary applications have been completed by the applicant, the business tax and application fees have been paid, no department has declared the building or structure "unsafe" as defined in Section 102 of the current edition of the California Uniform Building Code, and the business has not had an application denied pursuant to the provisions of this Chapter within the past year. A conditional license shall not be valid for a period longer than one hundred eighty (180) days from the date of application. During such period, based upon review by the appropriate departments of the City, the applicant may be rejected for failure to comply with applicable laws and regulations at any time. Within one hundred eighty (180) days, if no departments have rejected the applicant or requested an extension of the time to review same, the Director shall issue the license.

C. The Director, at his sole discretion, may issue a notice of nonoperation during the investigation period when a department determines the building or structure unsafe and corrections are required prior to the safe operation and continuation of the business. Following completion and City approval of any City mandated corrections, a conditional license or a business license may be issued. (Ord. C-7849 § 1, 2003: Ord. C-6259 § 1 (part), 1986)

3.80.421.5 Application—Rejection.

In the event that a particular department of the City rejects an application for the reason that such business or the location at which it is proposed to conduct the same will not so comply with applicable laws and ordinances, the Director Of Financial Management shall not issue such license. (Ord. C-6259 § 1 (part), 1986)

3.80.421.6 Appeals.

Any applicant for a business license whose application for such license has been denied by the Director of Financial Management may, within ten (10) days after such denial, appeal therefrom to the City Council by filing with the Director a notice of such appeal setting forth the decision and the grounds upon which he deems himself aggrieved thereby. The applicant shall pay to the Director at the time of filing the notice of appeal the fee set by resolution of the City Council for appeals hereunder. The Director shall thereupon make a written report to the City Council reflecting such determination denying the business license. The City Council at its next regular meeting following the filing of said appeal, or within ten (10) days following the filing thereof, shall set said appeal for hearing to be held not less than ten (10) days nor more than thirty (30) days thereafter and such hearing may for good cause be continued by the order of the City Council. Upon the hearing of the appeal the City Council may overrule or modify the decision of the Director appealed from and enter any such order or orders as are in harmony with this Title and such disposition of the appeal shall be final. (Ord. C-6325 § 8, 1986: Ord. C-6259 § 1 (part), 1986)

3.80.421.7 Due dates of licenses.

A. Every new license tax shall be due and payable on or prior to the date of commencement of the transacting or carrying on of the business, trade, profession, calling or occupation for which a tax is imposed under the provisions of this Chapter.

B. Each license tax for an existing business involving the rental of residential property shall be due and payable on July 1 of each year, and shall be deemed delinquent thirty (30) days after the due date if not paid.

C. Each license tax for an existing business involving vehicles requiring decals shall be due and payable on January 1 of each year, and shall be deemed delinquent thirty (30) days after the due date if not paid.

D. Each license tax for an existing business involving vending machine operations is due and payable on July 1 of each year, and shall be deemed delinquent thirty (30) days after the due date if not so paid.

E. Each license tax for an existing business involving all other business activities shall be due and payable on the anniversary date of issuance of each year, and shall be deemed delinquent thirty (30) days after the due date if not so paid. (Ord. C-7783 § 15, 2002; Ord. C-6259 § 1 (part), 1986)

3.80.422 Delinquent date—Penalty.

All license taxes provided for by this Chapter shall be due and payable in advance and the applicant who fails to pay for the license within thirty (30) days after the due date shall pay in addition to the taxes a penalty for nonpayment in the sum equal to twenty-five percent (25%) of the total amount. Additional penalties will be assessed in the following manner: ten percent (10%) shall be added on the first day of each calendar month following the month of the imposition of the twenty-five percent (25%) penalty if the tax remains unpaid; up to a maximum of one hundred percent (100%) of the tax payable on the due date. License taxes remitted correctly addressed and with postage prepaid, and placed in the United States mail, will not be delinquent if the postmark date stamped on the envelope is on or prior to the due date. The postmark shall govern the determination of whether the tax is delinquent.

Notwithstanding the above, any delinquent license taxes owed by businesses which have commenced operations after January 1, 1996, paid to the City between January 1, 1997, and March 31, 1997, shall not be subject to the above-described penalties. (Ord. C-7438 § 4, 1996: Ord. C-6259 § 1 (part), 1986)

3.80.422.5 Licenses not transferable.

Licenses issued pursuant to this Chapter are not transferable or assignable by the licensee to any other person, nor shall any tax paid by any person under the provisions of this Chapter be applied in whole or in part to the payment of any tax due or to become due from any other person, except that a license issued for rental of apartment houses and commercial and industrial spaces attaches to the property and is transferable to the new owner if a sale occurs prior to the expiration of the license. (Ord. C-6259 § 1 (part), 1986)

3.80.423 Use of license by unlicensed person.

No person holding a license required by this Chapter shall permit any unlicensed independent contractor to use the license, the licensed premises or the licensee's name for the purpose of evading payment of any license tax or of evading any other provision of this Code. (Ord. C-6259 § 1 (part), 1986)

3.80.424 Change of location.

Every person licensed under this Chapter who changes the location of his place of business shall, prior to engaging in such business at the new location, have the City endorse the new location on the license therefor, and a fee for the actual cost of making such endorsement, as determined by the director of financial management, shall be paid by such person at the time of endorsement. (Ord. C-6259 § 1 (part), 1986)

3.80.425.1 Evidence of doing business.

Whenever any person shall, by use of signs, circulars, cards or any other advertising media, including the use of telephone solicitation, hold himself out as, or represent that he is, doing business in the City, then these facts may be used as evidence that such person is doing business in the City. (Ord. C-6259 § 1 (part), 1986)

3.80.425.5 Display.

A. Every person having a license issued under this Title shall prominently display such license. If such business is operated from a vehicle or a boat, the vehicle or boat shall have affixed thereon an identifying decal issued by the City. In the event of loss of such license or decal, the City shall charge a replacement fee in an amount established by the Director of Financial Management to cover the actual cost to the City of replacement.

B. No person shall reproduce, duplicate, copy or alter an original business license for the purpose of circumventing the prominent display requirement of this Section or giving a false or misleading

impression that any duplication of an original City business license is valid and that the appropriate business license tax therefor has been paid.

C. No person who has a valid license issued by the City in his possession or under his control shall fail to exhibit the same on demand.

D. If the business license is for a business involving amusement or vending machines, each machine shall bear, in a conspicuous and visible place, a valid license decal issued by the City. (Ord. C-6325 § 9, 1986: Ord. C-6259 § 1 (part), 1986)

3.80.426.1 Records inspection.

Whenever it is necessary to examine any books and records of any person doing business in the City to ascertain the amount of any license fee or taxes or the amount of gross revenue generated by the primary and secondary business activities being conducted, the City shall have the power and authority to examine such necessary books and records during normal business hours. (Ord. C-6259 § 1 (part), 1986)

3.80.426.5 Mistakes not to prevent collection of proper amount.

A. In no case shall any mistake in the amount collected for any license tax or any penalty prevent the collection of the amount actually due for such license.

B. In case a mistake is made in the issuance of any license in the classification under which such license was issued, then a new license shall be issued in the proper classification in lieu thereof, under the date of the original license, and the licensee shall pay any additional amount required by such a change. (Ord. C-6259 § 1 (part), 1986)

3.80.427.1 Refund—Application.

Application for refund made pursuant to this Chapter must be filed with the City by the person entitled to the refund within one (1) year after payment of the money to the City. Refunds are authorized to be made payable only to the person or persons who paid the money and are subject to the conditions for payment of refunds in Section 3.48.040 of this Title. (ORD-06-0011 § 6, 2006: Ord. C-7849 § 2, 2003: Ord. C-6259 § 1 (part), 1986)

3.80.427.5 Refund—Grounds.

Any application for refund must be made by the person entitled to the money within one (1) year after payment of the money to the City. No refund shall be made of any moneys paid for the issuance or renewal of any license required by this Chapter, except where, for any reason:

A. An application for a license is denied; or

B. An application is withdrawn prior to the issuance of the license; or

C. There is paid for any license an amount in excess of that required in this Chapter; or

D. The tax for any license required in this Chapter is paid more than once for the same term; or

E. Following the issuance of a license, it is determined that such license was not required by the terms of this Chapter for the business or occupation of the licensee; or

F. Following the issuance of a license, it is determined that such licensee has not engaged in, nor held himself or herself out as being engaged in, such business or occupation at any time after the effective date of the license.

The amount of the refund shall be the full amount of the license tax paid less an amount determined by the Director of Financial Management which shall cover the cost of investigation and issuance of the license; or

G. Legislation is enacted by the City, State or federal government making the business or occupation covered by the license unlawful. The amount of the refund shall be computed on the unearned portion of the license tax dating from the time the business or occupation covered by the license actually ceased to be conducted or engaged in; or

H. The business or occupation covered by the license actually ceases to be conducted or engaged in because the person in whose name the license is issued dies, sustains an incapacitating illness or injury, or enters permanent active duty in the Armed Forces of the United States. The amount

of the refund shall be computed on the unearned portion of the license fee dating from the time the business or occupation covered by the license actually ceased to be conducted or engaged in; or

I. If the person entitled to the refund is an individual and such person becomes deceased, the refund may be made to such person or persons entitled to receive the money. (Ord. C-6325 § 10, 1986: Ord. C-6259 § 1 (part), 1986)

3.80.429.1 Suspension or revocation.

A. Whenever any person fails to comply with any provision of this Chapter pertaining to business license taxes or any rule or regulation adopted pursuant thereto or with any other provision or requirement of law, including, but not limited to, this Municipal Code and any grounds that would warrant the denial of initial issuance of a license hereunder, the Director of Financial Management, upon hearing, after giving such person ten (10) days' notice in writing specifying the time and place of hearing and requiring him or her to show cause why his or her license should not be revoked, may revoke or suspend any one (1) or more licenses held by such person. The notice shall be served in the same manner as notices of assessment are served under Section 3.80.444. The Director shall not issue a new license after the revocation of a license unless he or she is satisfied that the registrant will thereafter comply with the business license tax provisions of this Chapter and the rules and regulations adopted thereunder, and until the Director collects a fee, the amount of which shall be determined by Director in an amount to recover the actual costs of processing, in addition to any other taxes that may be required under the provisions of this Chapter.

B. Any person who engages in any business after the business license issued therefor has been suspended or revoked, and before such suspended license has been reinstated or a new license issued, shall be guilty of a misdemeanor. (Ord. C-6259 § 1 (part), 1986)

3.80.429.5 Appeal of license revocation.

Any licensee whose license is revoked under this Chapter shall have the right, within ten (10) days after the date of mailing of the written notice of revocation, to file a written appeal to the City Council. Such appeal shall set forth the specific ground or grounds on which it is based. The City Council shall hold a hearing on the appeal within thirty (30) days after its receipt by the City, or at a time thereafter agreed upon, and shall cause the appellant to be given at least ten (10) days' written notice of such hearing. At the hearing, the appellant or its authorized representative shall have the right to present evidence and a written or oral argument, or both, in support of its appeal. The determination of the City Council on the appeal shall be final. (Ord. C-6259 § 1 (part), 1986)

3.80.429.7 Confidentiality.

No person having an administrative duty pursuant to the provisions of this Chapter shall make known in any manner whatever the business affairs, operations, or information obtained by an investigation of the records and equipment of any person required to obtain a business license, or pay a business tax, or any other person visited or examined in the discharge of the official duty of the Director of Financial Management, or the amount or the source of income, profits, losses, or expenditures, or any particular thereof, set forth in any statement or application, or amended statement or application, or copy of either, or in any book containing any abstract or particulars therein to be seen or examined by any person; provided, however, the provisions of this Section shall not be construed to prevent:

A. Disclosures to, or the examination of records and equipment by, another City official, employee, or agent for the collection of taxes for the sole purpose of administering or enforcing the provisions of this Chapter or collecting the business taxes imposed by the provisions of this Chapter;

B. The disclosure of information to, or the examination of records by, federal or State officials of another City or County, or City and County, if the reciprocal arrangement exists, or to a grand jury or court of law upon a subpoena;

C. The disclosure of information and the results of examinations of records of particular taxpayers, or relating to particular taxpayers, to a court of law for proceedings brought to determine the existence of the amount of any business tax liability of such particular taxpayers of the City;

D. The disclosure, after the filing of a written request to the effect, to the taxpayer himself, or to his successors, receivers, trustees, executors, administrators, assignees, or guarantors if directly interested, of information as to items included in the measure of any paid business tax, any unpaid business tax, or any amount of business tax required to be collected, including interest and penalties; further provided, however, that the Director of Financial Management or his designee may refuse to make any disclosure referred to in this Subsection when, in his opinion, the public interest would suffer thereby;

E. The disclosure of the names and business addresses of persons to whom business licenses have been issued and the general type and nature of their businesses;

F. The disclosure, by way of public meeting or otherwise, of such information as may be necessary to the Council in order to permit the Council to be fully advised as to the facts when a taxpayer files a claim for the refund of business taxes, or submits an offer of compromise with regard to a claim asserted against him by the City for business taxes, or when acting upon any other matter; and

G. The disclosure of general statistics regarding business taxes collected or business done in the City. (Ord. C-6259 § 1 (part), 1986)

Subdivision 3. Rulemaking

3.80.430 Rules and regulations.

The Director of Financial Management is hereby delegated the authority, and may, from time to time, promulgate such administrative rules and regulations as may be necessary and proper to effectuate the purposes of this Chapter and to facilitate the Director's responsibility to administer and enforce its regulations. The scope of the Director's delegated authority shall include, but not be limited to, rules and regulations relating to apportionment of the business license tax, computation of the average number of employees for one (1) or more classifications of businesses and defining the nature of a change of business ownership and its impact on any existing business license under this Chapter. (Ord. C-6259 § 1 (part), 1986)

3.80.435 Determination of classification of business.

A. The determination of the tax applicable to a business or activity not expressly set forth herein shall be that business tax applicable to the business or activity expressly set forth herein which, in the opinion of the Director of Financial Management, is most nearly comparable. The Director may, in addition, require compliance with any other provision of this Code regulating the imposition of business tax of the particular business or activity determined to be most nearly comparable.

B. In any case, where a licensee or applicant for a license believes that he is placed in the wrong business or class of businesses, he may apply to the Director for a change in his classification. Such application may be made before, at, or within three (3) months after payment of the prescribed business tax. The applicant shall, by affidavit and supporting testimony, show such information as the Director may deem necessary in order to determine the proper classification. The Director may conduct his own investigation and shall have the administrative duty of determining the proper classification. Such determination by the Director shall be deemed final. (Ord. C-6259 § 1 (part), 1986)

Subdivision 4. Enforcement

3.80.440 Assessments, presumption and statute of limitations.

In the case of an audit or investigation by the City, the Director may make a deficiency determination or assessment for license taxes not paid or remitted by a person required to pay or remit, as evidenced by information provided by such person or other persons to the Director, or based upon a reasonable estimate of the Director if com-

plete evidence is not provided by the person required to pay or remit the tax. Such reasonable estimate shall be entitled to a rebuttable presumption of correctness. In the absence of fraud or other intentional misconduct, an audit period of review shall not exceed a period of three (3) years immediately preceding the date of receipt of a written notice (by such person) from the Director, or his or her authorized representative, notifying commencement of an audit. In the absence of fraud or other intentional misconduct, an investigation period for tax compliance shall not exceed a period of three (3) years immediately preceding the date the investigator contacted the taxpayer, or his or her authorized representative, notifying commencement of an investigation. The applicable statute of limitations shall commence from the date of receipt from the City of a written finalized deficiency determination or assessment by the Director or his or her authorized representative, which shall be issued within a reasonable time after all necessary information has been provided by the person required to pay or remit the tax. (Ord. C-7849 § 3, 2003)

3.80.441 License tax deemed debt to City.

The amount of any license tax, penalties and interest imposed by the provisions of this Chapter shall be deemed a debt to the City, and any person carrying on any business without first having procured a license under this Chapter from the City to do so, or having an appropriately renewed and valid license hereunder, shall be liable to an action in the name of the City in any court of competent jurisdiction for the amount of the license tax, and penalties if any, imposed on such business. (Ord. C-6259 § 1 (part), 1986)

3.80.442 Deficiency determinations.

If the Director of Financial Management is not satisfied that any statement filed as required under the provisions of this Chapter is correct, or that the amount of tax is correctly computed, he may compute and determine the amount to be paid and make a deficiency determination upon the basis of the facts contained in the statement, or upon the basis of any information in his possession or that may come into his possession. One (1) or more deficiency determinations of the amount of tax due for a period or periods may be made. When a person discontinues engaging in a business, a deficiency determination may be made at any time within three (3) years thereafter as to any liability arising from engaging in such business whether or not a deficiency determination is issued prior to the date the tax would otherwise be due. Whenever a deficiency determination is made, a notice shall be given to the person concerned in the same manner as notices of assessment are given under Sections 3.80.443 through 3.80.445. (Ord. C-6259 § 1 (part), 1986)

3.80.443 Tax assessment—Authorized when—Nonpayment—Fraud.

A. Under any of the following circumstances, the Director of Financial Management may make and give notice of an assessment of the amount of tax owed by a person under this Chapter:

1. If the person has not filed any statement or return required under the provisions of this Chapter;

2. If the person has not paid any tax due under the provisions of this Chapter;

3. If the person has not, after demand by the Director, filed a corrected statement or return, or furnished to the Director adequate substantiation of the information contained in a statement or return already filed, or paid any additional amount of tax due under the provisions of this Chapter;

4. If the Director determines that the nonpayment of any business tax due under this Chapter is due to fraud, a penalty of twenty-five percent (25%) of the amount of the tax shall be added thereto in addition to penalties and interest otherwise stated in this Chapter.

B. The notice of assessment shall separately set forth the amount of any tax known by the Director to be due or estimated by the Director, after full consideration of all information within his knowledge concerning the business and activities of the person assessed, to be due under each applicable section of this Chapter, and shall in-

clude the amount of any penalties or interest accrued on each amount to the date of the notice of assessment. (Ord. C-6259 § 1 (part), 1986)

3.80.444 Tax assessment—Notice requirements.

The notice of assessment shall be served upon the person either by handing it to him personally, or by a deposit of the notice in the United States mail, postage prepaid thereon, addressed to the person at the address of the location of the business appearing on the face of the license issued to him or to such other address as he shall register with the Director of Financial Management for the purpose of receiving notices provided under this Chapter; or, should the person have no license issued to him and should he have no address registered with the Director for such purpose, then to such person's last known address. For the purposes of this Section, a service by mail is completed at the time of deposit in the United States mail. (Ord. C-6259 § 1 (part), 1986)

3.80.445 Tax assessment—Hearing—Application and determination.

Within ten (10) days after the date of service the person may apply in writing to the Director of Financial Management for a hearing on the assessment. If application for a hearing before the City is not made within the time herein prescribed, the license tax assessed by the Director shall become final and conclusive. Within thirty (30) days of the receipt of any such application for hearing, the Director shall cause the matter to be set for hearing before the Director or a billing officer designated by the Director not later than thirty (30) days after the date of application, unless a later date is agreed to by the Director and the person requesting the hearing. Notice of such hearing shall be given by the Director to the person requesting such hearing not later than five (5) days prior to such hearing. At such hearing said applicant may appear and offer evidence why the assessment, as made by the Director, should not be confirmed and fixed as a license tax. After such hearing the Director shall determine and reassess the proper tax to be charged and shall forthwith give written notice thereof to the licensee in the manner prescribed in Section 3.80.444 for giving notice of assessment. (Ord. C-6259 § 1 (part), 1986)

3.80.446 Violation deemed misdemeanor—Penalty.

Any person violating any of the provisions of this Chapter or any regulation or rule passed in accordance herewith, or knowingly or intentionally misrepresenting to any officer or employee of this City any material fact in procuring the license herein provided for, shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be punishable by a fine of not more than five hundred dollars ($500.00) or by imprisonment for a period of not more than six (6) months, or by both such fine and imprisonment. (Ord. C-6259 § 1 (part), 1986)

3.80.447 Conviction for Chapter violation—Taxes not waived.

The conviction and punishment of any person for failure to pay the required license tax shall not excuse or exempt such person from any civil action for the license tax debt unpaid at the time of such conviction. No civil action shall prevent a criminal prosecution for any violation of the provisions of this Chapter or of any State law requiring the payment of all license taxes. (Ord. C-6259 § 1 (part), 1986)

Subdivision 5. Adjustment for Inflation/Deflation

3.80.451 Inflation/deflation.

A. Except for the taxes imposed by Sections 3.80.221 and 3.80.246, and except for any tax measured by gross receipts in Section 3.80.253, each tax, including each of its components, imposed in Division II of this Chapter, shall be automatically adjusted on July 1, 2002, and on July 1 of each year thereafter, upward or downward, equivalent to the most recent change in the annual average of the Consumer Price Index as

published by the United States Department of Labor for the Los Angeles-Riverside-Orange County area.

B. For purposes of calculating the annual inflation/deflation factor under this Section, the base year shall be that year ending with December 31, 2000, unless otherwise specified in a tax rate section of Division II of this Chapter. Rates shall next be adjusted on July 1, 2002, and annually thereafter, based on the annually calculated change from the base year. The July 1, 2002, adjustment shall be for the change in the average CPI for the year ending December 31, 2001. (Ord. C-7783 § 16, 2002: Ord. C-6986 § 3, 1992: Ord. C-6837 § 13, 1990: Ord. C-6259 § 1 (part), 1986)

DIVISION V. LICENSE TERM AND TRANSITIONAL PROVISIONS

3.80.510 Operative date.

The operative date of this Chapter shall be as follows:

A. As to all new businesses, the revised license tax provisions as set forth in this Chapter shall be operative on and after November 1, 1985, and the new license taxes herein imposed shall thereupon apply.

B. As to an existing business involving the rental of residential property, the revised license tax set forth in this Chapter shall become operative on and after March 1, 1986.

C. As to an existing business involving vehicles requiring decals, the revised license tax set forth in this Chapter shall become operative on and after January 1, 1986.

D. As to an existing business involving vending machine operation, the revised license tax set forth in this Chapter shall become operative on and after July 1, 1986.

E. As to an existing business involving all other business activities, the revised license tax set forth in this Chapter shall be operative on and after November 1, 1985, and shall first be applied to said existing business upon the anniversary/renewal date of its business license first occurring on or after that date. (Ord. C-6259 § 1 (part), 1986)

3.80.520 Term of license.

A. The term of annual licenses issued for the rental of residential property shall commence on March 1 and expire on the last day of February of the succeeding year, provided that the term commencing March 1, 1993, shall be for sixteen (16) months (with taxes prorated) and shall expire after twelve o'clock (12:00) midnight of June 30, 1994. Thereafter, the term of annual licenses issued for the rental of residential property shall commence on July 1 and shall expire on June 30 of the succeeding year.

B. The term of annual licenses issued for vending machine operators shall commence on July 1 and expire on June 30 of the succeeding year.

C. The term of annual licenses for vehicles requiring decals shall commence on January 1 and expire on December 31 of the succeeding year.

D. The term of all other annual licenses issued pursuant to this Chapter shall commence on the date of issuance and expire at the end of twelve (12) calendar months thereafter.

E. The term of quarterly and semiannual licenses issued pursuant to this Chapter shall commence on the date of issuance and expire at the end of three (3) and six (6) months, respectively, thereafter. (Ord. C-7067 § 2, 1993; Ord. C-6259 § 1 (part), 1986)

3.80.530 Proration of annual license for new business.

Annual business license taxes for all new businesses commenced after November 1 of the license shall be prorated by the month for the balance of the license period. (Ord. C-6259 § 1 (part), 1986)

CHAPTER 3.90 DEVELOPMENT PERMIT CENTER SURCHARGE*

3.90.010 Purpose.

The purpose of this Chapter is to impose a surcharge to fund the continuous upgrade, im-

---

***Editor's note**—Formerly entitled "Development Services Center Surcharge," which was amended by ORD-19-0032 as herein set out.

Note—Prior ordinance history: Ords. C-7577, C-7821 and ORD-06-0039.

provement and maintenance of technology for development projects and services. (ORD-19-0032 § 1, 2019; ORD-07-0063 § 1 (part), 2007)

3.90.020 Surcharge.

A. There shall be added to each fee imposed or authorized by the provisions of Titles 12, 14, 18, 20 and 21 of this Code; and Part 12.01 of the rules, regulations, and charges governing potable water, reclaimed water, sewer service, and the emergency water conservation plan adopted by the Long Beach Board of Water Commissioners, a surcharge in an amount as set forth in the Schedule of Fees and Charges established by City Council resolution.

Exception: The surcharge shall not apply to the fees or charges required in Chapters 18.15, 18.16, 18.17, and 18.18 of this Code, and Sections 18.20.150, 21.60.650 and 21.61.070 of this Code.

B. The City Manager is authorized to establish appropriate procedures to carry out the provisions of this Chapter. (ORD-19-0032 § 1, 2019; ORD-16-0028 § 1, 2016; ORD-11-0012 § 1, 2011; ORD-07-0063 § 1 (part), 2007)

CHAPTER 3.91 SURCHARGE ON BUILDING, ZONING AND RELATED PERMIT FEES*

3.91.010 Purpose.

The purpose of this Chapter is to impose a surcharge on all building, zoning, environmental, electrical, mechanical, and plumbing plan check and permit fees in order to fund the continued amendment and maintenance of the general plan of the City of Long Beach to at all times ensure the legal viability and adequacy of such plan. (ORD-05-0022 § 1, 2005)

3.91.020 Surcharge.

There shall be added to each building, zoning, environmental, electrical, mechanical, and plumbing plan check and permit fees, imposed or authorized by the City, a surcharge in an amount as set forth in the Schedule of Fees and Charges established by City Council resolution. The City Manager is authorized to establish appropriate procedures to carry out the provisions of this Chapter. (ORD-06-0039 § 2, 2006: ORD-05-0022 § 1, 2005)

*__Note__—Prior ordinance history: Ord. C-7875 § 1, 2003.

CHAPTER 3.92 HOUSING TRUST FUND

3.92.010 Purpose and intent.

It is the intent of the City Council to create a Housing Trust Fund as a source of revenue to meet, in part, the housing needs of the City's extremely low, low, and moderate income households.

The Housing Trust Fund will serve as a vehicle for addressing the housing needs of extremely low, low, and moderate income households through a combination of funds as provided for in this Chapter.

It is further the intent of the Council to increase ownership opportunities available to extremely low, low, and moderate income households throughout the City.

It is the purpose and intent of this Chapter to preserve and increase renter and ownership housing units which are affordable to extremely low, low, and moderate income households which are located within the City, including federally assisted units.

It is further the intent of the City Council to foster and encourage the private sector to join with the public sector to further the goals of this Chapter. (ORD-23-0050 § 1, 2023; ORD-06-0021 § 1 (part), 2006)

3.92.020 Definitions.

Unless the context requires otherwise, the words and phrases used in this Chapter shall have the meanings as defined below:

A. "Affordable" means a housing unit that has an affordable housing or rental cost.

B. "Affordable housing cost" shall have the meaning ascribed to that term in Section 50052.5 of the California Health and Safety Code ("Code"), or any successor section thereto.

C. "Affordable rent" shall have the meaning ascribed to that term in Section 50053(a) of the Code, or any successor section thereto.

D. "Area median income" means the median income in the Long Beach standard metropolitan statistical area adjusted for family size, as published by the United States Department of Housing and Urban Development.

E. "Assisted unit" means a housing unit that is affordable because of assistance from the fund.

F. "Extremely low income household" means a household whose income is no more than thirty percent (30%) of area median income.

G. "Housing Trust Fund" means the Long Beach Housing Trust Fund account maintained by the City to fund the activities authorized by this Chapter.

H. "Low income household" means a household whose income is no more than eighty percent (80%) of area median income.

I. "Moderate income household" means a household whose income is no more than one hundred twenty percent (120%) of area median income.

J. "Recipient" means a person or legal entity which receives funds from the Housing Trust Fund other than the company. (ORD-23-0050 § 2, 2023; ORD-06-0021 § 1 (part), 2006)

3.92.030 Establishment of the Long Beach Housing Trust Fund and trust fund account.

A. There is established a fund to be known and denominated as the Long Beach Housing Trust Fund ("housing trust fund"). The housing trust fund shall consist of such sums as are directed to the fund by ordinance of the City Council and any other appropriations as determined from time to time by action of the City Council. The housing trust fund shall be administered by the Long Beach Community Investment Company ("company") pursuant to the provisions of this Chapter, the program plan (defined below), the appropriation ordinances and Council policies applicable thereto.

B. All funds received by the housing trust fund, either from special funds or general fund appropriations, shall be deposited in an account to be known and denominated as the housing trust fund account. Principal and interest from loan repayments, proceeds from grant repayments, forfeitures, reimbursements, and all other income from housing trust fund activities, shall be deposited in the housing trust fund account unless required otherwise by funding regulations. All funds shall earn interest at least at the same rate as pooled investments managed by the City Treasurer. All interest earnings from the housing trust fund account shall be reinvested and dedicated to the account. All appropriated funds in the housing trust fund account shall be available for program expenditures as directed by the company. The City's annual appropriation ordinance shall provide for the transfer of designated funds to the housing trust fund. Transfers shall be made quarterly or upon direction of the City Manager. Designated funds shall accrue interest from the time of transfer to the housing trust fund account. (ORD-23-0050 § 3, 2023; ORD-06-0021 § 1 (part), 2006)

3.92.040 Purpose and use of housing trust fund moneys.

Funds in the housing trust fund shall be used solely for programs and administrative support approved by the City Council in the program plan to meet the housing needs of extremely low, low, and moderate income households. After payment of administrative expenses, funds in the housing trust fund account shall be allocated according to the following requirements:

A. Not more than twenty percent (20%) of the funds in the housing trust fund account shall be expended to provide housing assistance and homeownership opportunities for moderate income households at affordable costs;

B. Not less than thirty percent (30%) of the funds in the housing trust fund account shall be expended to provide housing assistance and homeownership opportunities to extremely low income households at affordable housing costs; and

C. The remaining funds in the housing trust fund account shall be expended to provide housing assistance to low income households. (ORD-23-0050 § 4, 2023; ORD-06-0021 § 1 (part), 2006)

3.92.050 Term of affordability.

A. Whenever funds from the housing trust fund account are used for the acquisition, construction or substantial rehabilitation of affordable housing, the company shall impose enforceable requirements on the owner of the housing unit requiring that the unit remain affordable for a minimum of fifty-five (55) years for rental housing and thirty (30) years for ownership housing.

B. For programs funded with funds from the housing trust fund which are not described in Subsection A of this Section, the company shall develop appropriate mechanisms to ensure the continued affordability of the involved units.

C. The affordability restriction requirements described in this Section shall run with the land and the company shall develop appropriate procedures and documentation to enforce these requirements and shall record such documentation in the official records of the Recorder of Los Angeles County. (ORD-06-0021 § 1 (part), 2006)

3.92.060 Program plan.

Prior to the commencement of the fiscal year, the company shall adopt a plan ("program plan") and present it to the City Council for action. The program plan shall include:

A. A description of all programs and projects to be funded with funds from the housing trust fund; and

B. The amount of funds budgeted for the programs and projects administered by the company. (ORD-06-0021 § 1 (part), 2006)

3.92.070 Funding of supporting services.

Funds from the housing trust fund may be used in any manner consistent with this Chapter, through loans, grants, or indirect assistance, for the production and maintenance of assisted units and related facilities. Funds shall not be used for the operation of supporting services such as childcare or social services unless:

A. The funds are used in connection with affordable housing; and

B. The recipient can demonstrate to the satisfaction of the company that other funds are not available. (ORD-06-0021 § 1 (part), 2006)

3.92.080 Publication of program documents.

The company shall publish such administrative rules and guidelines as are necessary and desirable to implement the programs approved by the City Council in the program plan. (ORD-06-0021 § 1 (part), 2006)

3.92.090 Annual report.

The company shall once each year prepare and submit a report to the City Council on the activities undertaken with funds from the housing trust fund. The report shall contain the information necessary to support the findings specified in Section 66001 of the California Government Code. (ORD-06-0021 § 1 (part), 2006)

3.92.100 Financial management.

The City Treasurer shall maintain and report within the City's accounts a separate housing trust fund account and any required related subsidiary funds for all related financing transferred from the City and any related income. Such funds shall be accounted for and reported separately on the company's annual financial report, and such funds shall be audited for compliance with this Chapter and related policies and regulations. The company shall prepare any other reports legally mandated for financing sources of the housing trust fund. (ORD-06-0021 § 1 (part), 2006)

CHAPTER 3.94 BUDGET STABILIZATION ("RAINY DAY") FUND

3.94.010 Establishment of the fund.

There is hereby established within the City of Long Beach the "Budget Stabilization Fund", which

shall be either a subfund within the City's General Fund or in a separate fund (the "Budget Stabilization Fund"). (Measure B § 1, 2016)

3.94.020 Purpose.

The Budget Stabilization Fund shall be used to fund future City operations and activities that would otherwise be reduced in scope, suspended or eliminated due to unanticipated shortfalls in General Fund structural revenues, whether caused by economic recession or other financial hardship of the City. For purposes of this Subsection, the phrase "General Fund structural revenues" means on-going revenues which are available to fund on-going General Fund operations. (Measure B § 1, 2016)

3.94.030 Transfers into and from the Budget Stabilization Fund.

A. Automatic Deposit of New General Tax Revenues into the Budget Stabilization Fund. The Budget Stabilization Fund shall be funded by an automatic deposit/transfer of one percent (1%) of any new general tax revenues generated each year, commencing with Fiscal Year 2017. For purposes of this subsection, the phrase "new general tax revenues" means all revenues generated from any new or increased general tax which has been approved by the voters of the City on or after the effective date of this Chapter including, but not limited to revenues from the Transactions and Use Tax which was submitted to the voters concurrently with this ordinance.

B. Discretionary Deposits into Budget Stabilization Fund not Prohibited. Nothing in this Chapter shall prohibit the City Council, as part of the budgeting process, from contributing additional revenues to the Budget Stabilization Fund, as determined in the City Council's sound legislative discretion.

C. Expenditures from the Budget Stabilization Fund. The City Council may expend up to fifty percent (50%) of funds available from the Budget Stabilization Fund in any single fiscal year if the City Council declares a fiscal hardship requiring the use of such resources to maintain current levels of City services and programs. For purposes of this section, a "fiscal hardship" shall be deemed to occur whenever the City Manager, in the proposed budget for a fiscal year, projects a level of General Fund structural revenues that will result in a two percent (2%) or greater reduction in funding for general City services, as compared to the base budget that would be needed to maintain existing services. For purposes of this subsection, the phrase "base budget" means the projected on-going costs needed to maintain the same level of General Fund operations as the prior fiscal year's budget. The City Council may not draw down from the Budget Stabilization Fund more than three (3) consecutive years, after which the City Council must consider alternative revenue sources or permanent reductions in general City services for the ensuing fiscal year. An assessment of the City's long-term financial outlook should be considered when making decisions about how much to expend from the Budget Stabilization Fund, including a projection of how Budget Stabilization Fund resources are expected to be used and at least partially replenished over the following years.

D. Maximum balance for Budget Stabilization Fund. At no time shall the balance of the Budget Stabilization Fund exceed five percent (5%) of the City's General Fund structural revenues forecast in the adopted budget for the subsequent fiscal year. Automatic transfers of revenues into the Budget Stabilization Fund as required by Subsection A shall be made only to the extent that the Fund balance does not exceed the five percent (5%) threshold, as calculated above, and any automatic transfer that would result in such an excess balance shall be suspended.

E. Suspension of automatic transfer. The automatic transfer described in Subsection A shall be temporarily suspended when revenue forecasts underlying the adopted budget anticipate a decline in General Fund structural revenues, as compared to the structural revenue underlying the adopted or amended budget, whichever is greater, for the fiscal year immediately prior. Automatic transfers shall remain suspended until positive revenue growth is reflected in the structural revenue

forecasts underlying the adopted budget. The automatic transfer described in Subsection A shall also be temporarily suspended in any year where the Council authorizes an expenditure from the Budget Stabilization Fund.

F. Resumption of automatic transfer. In the first fiscal year during which positive General Fund structural revenue growth is again forecast, and during which the Council does not authorize an expenditure from the Budget Stabilization Fund, the automatic transfer shall resume, and shall continue in each fiscal year thereafter, unless (i) the City again forecasts a nominal decline in General Fund structural revenues, (ii) the Budget Stabilization Fund reaches five percent (5%) of the City's General Fund revenues, or (iii) the City Council again authorizes an expenditure from the Budget Stabilization Fund. (Measure B § 1, 2016)

Title 4

(RESERVED)

Title 5

REGULATION OF BUSINESSES, TRADES AND PROFESSIONS*

Part I. General Provisions

Chapter 5.02 Purpose and Definitions

5.02.010 Purpose.
5.02.020 Definitions.

Part II. Administration, Enforcement and Penalties

Chapter 5.04 Administration

5.04.010 Application—Required.
5.04.020 Application—Investigation.
5.04.030 Application—Rejection.
5.04.040 Fees.
5.04.050 Health inspection, fees and permit required.
5.04.055 Permit identification card.
5.04.060 Photographs.
5.04.070 Issuance.
5.04.090 Bond—Termination.
5.04.100 Use of permit by unauthorized person.
5.04.120 Display.

Chapter 5.06 Cancellations, Suspensions, Revocations, Denials and Appeals

5.06.010 Identification of controlling procedures.
5.06.020 Suspension/Revocation/Denial.
5.06.025 Cancellation.

***Note**—Prior ordinance history: Prior code §§ 3560, 3560.1-3560.20, 4140.17-4140.40, 4180.2, 4180.3, 4180.3.1-4180.3.8, 4220.1-4220.10, 4220.12-4220.15, 4270, 4270.1-4270.13, 6000, 6000.1-6000.10, 6100, 6100.1-6100.13, 6100.13.1, 6100.20, 6100.25, 6100.26, 6100.43-6100.45, 6100.47, 6100.58, 6100.70, 6100.94, 6100.95, 6100.99.1, 6100.99.2, 6100.101, 6100.135-6100.137, 6100.143, 6100.170, 6100.178, 6100.184, 6100.186, 6100.197, 6100.202, 6100.202.1, 6100.205, 6100.206, 6100.218, 6100.219, 6100.225, 6100.250-6100.267, 6110-6116, 6118, 6211, 6211.1-6211.23, 6212, 6212.1-6212.4, 6213, 6213.1-6213.7, 6214, 6220, 6220.1-6220.23, 6221, 6221.2, 6221.3, 6222, 6222.1-6222.8, 6223, 6223.1-6223.10, 6230, 6230.1-6230.8, 6230.50, 6230.60-6230.75, 6240, 6240.1-6240.13, 6240.16-6240.38, 6241, 6241.1-6241.7, 6241.9, 6241.10, 6242, 6242.1-6242.3, 6251, 6251.1-6251.32, 6252, 6252.1, 6252.3, 6252.5, 6252.7, 6252.9, 6252.11, 6252.13, 6252.15, 6252.17, 6252.19, 6252.21, 6252.23, 6252.25, 6252.27, 6252.29, 6252.31, 6252.33, 6252.35, 6252.37, 6253, 6253.1-6253.7, 6254, 6254.1-6254.15, 6255, 6255.1-6255.3, 6255.3.1, 6255.4-6255.6, 6255.6.1, 6255.7, 6255.8, 6255.8.1, 6255.8.2, 6255.9-6255.14, 6255.14.1, 6255.15, 6255.16, 6256, 6256.1-6256.4, 6257, 6257.1-6257.8, 6270, 6270.1-6270.3, 6272, 6272.1-6272.4, 6272.6, 6273, 6273.1-6273.19, 6274, 6274.1-6274.16, 6275, 6275.1-6275.7, 6277, 6277.1, 6278, 6278.1, 6279, 6279.1-6279.3, 6280, 6280.1-6280.4, 6281, 6281.1-6281.3, 6290 and 6290.1-6290.11; Ord. C-5226; Ord. C-5240; Ord. C-5262; Ord. C-5266; Ord. C-5273; Ord. C-5297; Ord. C-5300; Ord. C-5335; Ord. C-5341; Ord. C-5342; Ord. C-5356; Ord. C-5358; Ord. C-5397; Ord. C-5399; Ord. C-5408; Ord. C-5422; Ord. C-5449; Ord. C-5470; Ord. C-5474; Ord. C-5504; Ord. C-5512; Ord. C-5531; Ord. C-5558; Ord. C-5565; Ord. C-5579; Ord. C-5619; Ord. C-5640; Ord. C-5664; Ord. C-5689; Ord. C-5691; Ord. C-5704; Ord. C-5715; Ord. C-5725; Ord. C-5783; Ord. C-5794; Ord. C-5811; Ord. C-5843; Ord. C-5868; Ord. C-5902; Ord. C-5922; Ord. C-5939; Ord. C-5946; Ord. C-5954; Ord. C-5967; Ord. C-5995; Ord. C-5999; Ord. C-6004; Ord. C-6006; Ord. C-6016; Ord. C-6021; Ord. C-6046; Ord. C-6065; Ord. C-6086; Ord. C-6105; Ord. C-6111; Ord. C-6120; Ord. C-6130; Ord. C-6131; Ord. C-6135; Ord. C-6144; Ord. C-6182; Ord. C-6184; Ord. C-6208; Ord. C-6211; Ord. C-6226; Ord. C-6247.

5.06.030 Appeals from permit denial.

Chapter 5.08 Enforcement and Penalties

5.08.010 Inspectors.
5.08.020 Duty of Police Officers/Civilian Police personnel.
5.08.030 Penalties.
5.08.040 Criminal procedure not to satisfy civil claim.
5.08.050 Civil actions.

Part III. Particular Business Regulations

Chapter 5.09 Employment Discrimination

5.09.010 Definitions.
5.09.020 Discrimination prohibited.
5.09.030 Bona fide business requirements.
5.09.040 Enforcement.
5.09.050 Severability.

Chapter 5.12 Alarm Systems

5.12.010 Purpose.
5.12.020 Definitions.
5.12.030 Permit—Required.
5.12.040 Exceptions.
5.12.050 Alarm system permit—Application—Form.
5.12.060 Alarm system permit—Application—Investigation.
5.12.070 Confidentiality.
5.12.080 Alarm system permit—Fee.
5.12.090 Approving authority.
5.12.100 Permit—Nontransferable.
5.12.110 Standards and regulations.
5.12.120 Number of false alarms—Fees—Nonresponse—Exceptions.
5.12.140 Alarm system permit—Suspension or revocation—Grounds.
5.12.150 Alarm system permit—Suspension or revocation—Authority.
5.12.160 Alarm system permit—Suspension or revocation—Hearing.
5.12.170 Alarm system permit—Suspension or revocation—Appeal.

Chapter 5.16 Automobile Businesses

Article I. Definitions

5.16.010 Definitions.

Article II. Automobile Dealers—New and Used

5.16.015 Parking on street prohibited.

Article III. Auto Repair Shops

5.16.020 Use of public street prohibited.

Article IV. Public Garages and Valet Parking

5.16.030 Parking on street prohibited.

Article V. Auto Wreckers

5.16.040 Use of streets prohibited.

Article VI. Car Rental Agencies

5.16.050 Use of streets prohibited.

Chapter 5.20 Bingo

5.20.010 Defined.
5.20.020 Permit—Required.
5.20.030 Permit—Organizations eligible.
5.20.040 Permit—Application—Fee.
5.20.050 Permit—Applicant qualification.
5.20.060 Permit—Application—Contents.
5.20.070 Permit—Application—Investigation.
5.20.080 Permit—Contents.
5.20.085 Renewal of permits.
5.20.090 Permit—Revocation—Hearing.
5.20.100 Permit—Revocation—Alternative procedure.
5.20.110 Permit—Revocation—Appeal.
5.20.120 Maximum amount of prizes.
5.20.130 Profits to be kept in separate fund or account.
5.20.140 Financial interest in permittee only.
5.20.150 Exclusive operation by permittee.
5.20.155 "Break-open" or "pull-tab" bingo.
5.20.165 Bingo games open to public.
5.20.170 Attendance limited to occupancy capacity.
5.20.180 Bingo games conducted only on permittee's property.
5.20.190 Minors not to participate.
5.20.200 Intoxicated persons not to participate.
5.20.210 Hours of operation.
5.20.220 Participant must be present.
5.20.230 Receipt of profit by any individual prohibited.

5.20.240 City may enjoin violation.

Chapter 5.24 Boxing and Wrestling Exhibitions

5.24.010 Definitions.
5.24.020 Boxing permit—Required.
5.24.030 Boxing permit—Application.
5.24.040 Boxing permit—Issuance.
5.24.050 Boxing permit—Fee.
5.24.060 Boxing permit—Nontransferable.
5.24.070 Boxing permit—Revocation.
5.24.080 Wrestling permit—Required.
5.24.090 Wrestling permit—Application.
5.24.100 Wrestling permit—Fee.
5.24.110 Wrestling permit—Issuance.
5.24.120 Wrestling permit—Nontransferable.
5.24.130 Wrestling permit—Revocation.
5.24.140 Exemption.
5.24.150 Mock boxing and mock wrestling—Definitions.
5.24.160 Mock boxing and mock wrestling—Permit required.
5.24.170 Mock boxing and mock wrestling permit—Application.
5.24.180 Mock boxing and mock wrestling permit—Issuance.
5.24.190 Mock boxing and mock wrestling—Fee.
5.24.200 Mock boxing and mock wrestling permit—Nontransferable.
5.24.210 Mock boxing and mock wrestling permit—Suspension or revocation.
5.24.220 Mock boxing and mock wrestling—Regulations.

Chapter 5.26 Carnivals, Circuses and Related Concessions

5.26.010 Carnival.
5.26.020 Circus.
5.26.030 Carnival concessions.
5.26.040 Fees.

Chapter 5.28 Charitable Solicitations

5.28.010 Definitions.
5.28.020 Exceptions.
5.28.030 Emergency waiver.
5.28.040 Solicitor authorization.
5.28.050 Permit—Notice of intention—Contents.
5.28.051 Solicitation permit—Bond.

5.28.060 Permit—Notice of intention—Investigation.
5.28.070 Permit—Notice of intention—Filing.
5.28.071 Paid solicitors—Registration.
5.28.080 Promoter registration certificate—Information required.
5.28.090 Promoter registration certificate—Denial or revocation.
5.28.110 Bond cancellation.
5.28.120 Solicitation regulations.
5.28.122 Solicitations without direct personal contact—Disclosure of information.
5.28.130 Solicitation box or receptacle.
5.28.140 Receipt for contribution.
5.28.150 Accounting.
5.28.160 Report.
5.28.170 False identification prohibited.
5.28.180 Fraud prohibited.
5.28.190 Permit—Denial—Revocation—Appeal.
5.28.200 Revocation of permit not to bar prosecution.

Chapter 5.30 Cigarette Vending Machines

5.30.010 Definitions.
5.30.020 Regulation of vending machines.
5.30.030 Minors prohibited.

Chapter 5.32 Coin and Stamp Dealers

5.32.010 Definitions.
5.32.020 Permit—Required.
5.32.030 Permit—Application.
5.32.040 Permit—Fee.
5.32.050 Inspection authorized.
5.32.060 Other requirements.

Chapter 5.34 Escorts and Escort Bureaus

5.34.010 Permit required.
5.34.020 Exceptions.
5.34.030 Permit application.
5.34.040 Permit—Nontransferable.
5.34.050 Investigation.
5.34.060 Permit issuance.
5.34.070 Separate permit for each person.
5.34.080 Age of escorts.

5.34.090 Term of escort permit.
5.34.100 Renewal of permits.
5.34.110 Escort identification card.
5.34.120 Nuisance.
5.34.130 Suspension or revocation.

Chapter 5.35 Microenterprise Home Kitchen Operations

5.35.010 Purpose.
5.35.020 Definitions.
5.35.030 Scope.
5.35.040 Facility Permit Requirements.
5.35.050 Required Compliance.
5.35.060 Operating Standards.
5.35.070 Food Preparation and Storage.
5.35.080 Expanded Food Service.
5.35.090 Safety.
5.35.100 Signage Prohibited.
5.35.110 Inspections.
5.35.120 Enforcement.
5.35.130 Implementation.
5.35.140 Severability.

Chapter 5.36 Firearms Dealer

5.36.010 Permit—Required.
5.36.020 Permit application.

Chapter 5.37 Mobile Food Facilities

Division 1. Purpose and Definitions

5.37.010 Purpose.
5.37.020 Definitions.

Division 2. Administration

5.37.030 License and permits required.
5.37.040 Mobile Food Facility business permit - application and fees.
5.37.050 Mobile Food Facility business permit - term and renewal.
5.37.060 Health permit for Mobile Food Facilities.
5.37.070 Insurance.

Division 3. General Operating Conditions and Locations

5.37.080 General operating conditions.

5.37.090 Public Right of Way and Park Parking Lots - general operating conditions and locations.
5.37.100 Mobile Food Facilities on Private Property—Long-term Use.
5.37.110 Mobile Food Facilities on Private Property—Short-term Temporary Events.

Division 4. Enforcement and Penalties

5.37.120 Enforcement and Penalties.
5.37.130 Mobile Food Facility business permit - investigation.
5.37.140 Mobile Food Facility business permit - cancellations, suspensions, revocations, denials, and appeals.
5.37.150 Severability.

Chapter 5.38 Fortunetelling

5.38.010 Defined.

Chapter 5.40 Garage Sales

5.40.010 Definitions.
5.40.015 Only personal property to be sold.
5.40.020 Permit required.
5.40.030 Frequency and term of permit.
5.40.040 Impounded property.
5.40.050 Permit—Nontransferable.
5.40.060 Display of permit.
5.40.065 Goods on sidewalk prohibited.
5.40.070 Hours of garage sales.
5.40.075 Signs.
5.40.080 Estate sales.
5.40.085 Multifamily sales.
5.40.090 Infraction—Misdemeanor.

Chapter 5.42 Gasoline Sales

5.42.010 Price signs required.

Chapter 5.44 Going-Out-of-Business Sales

5.44.010 Definitions.
5.44.020 Registration—Required.
5.44.030 Exception—Court sale.
5.44.040 Supplemental permit—Required.
5.44.045 Supplemental permit—Application.
5.44.055 Permit limitations.
5.44.070 Adding to inventory prohibited.

5.44.080 Going out of business sales.

Chapter 5.46 Handbills and Advertising

5.46.010 Definitions.
5.46.020 Pamphlet distribution hours.
5.46.030 Distribution on private property restricted.
5.46.040 Manner of distribution.
5.46.050 Business license required.
5.46.060 Public posting prohibited.
5.46.070 False advertising prohibited.

Chapter 5.47 Horse-Drawn Carriages

5.47.010 Definitions.
5.47.020 Permit—Required.
5.47.030 Permit—Application.
5.47.040 Permit application—Reviewed by City departments.
5.47.050 Application/permit fees.
5.47.060 Permit and business license required.
5.47.070 Permit—Display.
5.47.080 Regulations applicable to horse-drawn carriages and drivers.
5.47.090 Indemnity and insurance.
5.47.100 Penalty for violation.
5.47.110 Operating regulations.

Chapter 5.48 Hotels and Motels

5.48.010 Hotel and motel rentals.
5.48.020 Payment of minimum compensation and sick days to hotel workers.

Chapter 5.49 Hotel Working Conditions

5.49.010 Purpose.
5.49.020 Definitions.
5.49.030 Measures to protect hotel employees from harassment and assault.
5.49.040 Humane Workload.
5.49.050 Voluntary overtime.
5.49.060 Preservation of records.
5.49.070 No retaliation.
5.49.080 Waiver.
5.49.090 Enforcement.
5.49.100 Severability.

5.49.110 No Preemption of Higher Standards.
5.49.120 Regulations.

Chapter 5.50 House Movers

5.50.010 House movers—Insurance requirements.

Chapter 5.51 Reserved

Chapter 5.52 Junk Dealers

5.52.010 Definitions.
5.52.020 Permit—Application.
5.52.030 Business License—Permit required.
5.52.040 Operating requirements.
5.52.090 False name or address by seller.
5.52.100 Resale within seven days prohibited.
5.52.110 Exceptions.
5.52.120 Purchase from minors.

Chapter 5.53 COVID-19 Citywide Worker Retention

5.53.010 Purpose.
5.53.020 Definitions.
5.53.030 Business worker retention.
5.53.040 Enforcement.
5.53.050 Retaliatory action prohibited.
5.53.060 Exemption for collective bargaining agreement.
5.53.070 No waiver of rights.
5.53.080 Severability.
5.53.090 Reserved.

Chapter 5.54 Hotel Worker Safety Precautions

5.54.010 Purpose.
5.54.020 Definitions.
5.54.030 Measures to protect hotel employees from harassment and assault.
5.54.040 Application to existing hotels.
5.54.050 Severability.
5.54.060 Relationship to other ordinances.

Chapter 5.55 COVID-19 Citywide Worker Recall

5.55.010 Purpose.
5.55.020 Definitions.

5.55.030 Right of recall.
5.55.040 Enforcement.
5.55.050 Retaliatory action prohibited.
5.55.060 Exemption for collective bargaining agreement.
5.55.070 No waiver of rights.
5.55.080 Severability.
5.55.090 Reserved.

Chapter 5.56 Locksmiths

5.56.010 Applicability.
5.56.020 Permit and license required.

Chapter 5.57 Nuisance Motel Regulation

5.57.010 Purpose and intent.
5.57.020 Definitions.
5.57.030 Regulations.
5.57.040 Administration and enforcement.

Chapter 5.58 Massage Establishments

5.58.010 Purpose and intent.
5.58.020 Definitions.
5.58.030 Massage Establishment Permit - required.
5.58.040 Massage Establishment Permit - exemptions.
5.58.050 Massage Establishment Permit application process.
5.58.060 Massage Establishment Permit - issuance.
5.58.070 Massage Establishment Permit - denial.
5.58.080 Suspension or revocation of Massage Establishment Permit.
5.58.090 Massage Establishment Permit reapplication.
5.58.100 Massage Establishment Permit nontransferable.
5.58.110 Minimum age requirement.
5.58.120 Display of permit and certifications.
5.58.130 Facilities and operating requirements.
5.58.140 Responsibility of employer/permittee.
5.58.150 Applicability to existing businesses.
5.58.160 Cease of business.
5.58.170 Inspections.
5.58.180 Enforcement and penalties.
5.58.190 Severability.

Chapter 5.59 Mortgage Modification Consultant

5.59.010 Definitions.
5.59.020 Right of cancellation.
5.59.030 Contract requirements.
5.59.040 Violations.
5.59.050 Waiver.
5.59.060 Owner's right of action.
5.59.070 Liability of mortgage modification consultant for damages resulting from statements made, or acts by, a representative.
5.59.080 Statement of intent.
5.59.090 Severability.

Chapter 5.60 Parades and Special Events

5.60.010 Definitions.
5.60.020 Permit—Required.
5.60.030 Exceptions to the special event permit requirement.
5.60.040 Permit—Application.
5.60.050 Permit application—Fee.
5.60.060 Permit—Denial or revocation.
5.60.070 Hold harmless.
5.60.080 Departmental Services Charge.
5.60.090 Refunds.
5.60.100 Interfering with activity prohibited.
5.60.110 Penalty for violation.
5.60.120 Appeals.
5.60.130 Rules and regulations.
5.60.140 Unlawful to use city name without authorization.

Chapter 5.61 Filming Activities

5.61.010 Definitions.
5.61.020 Permit required.
5.61.030 Permit application.
5.61.040 Permit application fees.
5.61.050 Rules and regulations.
5.61.060 Reimbursement for costs.
5.61.070 General permit conditions.
5.61.080 Hold harmless.
5.61.090 Appeals.
5.61.095 Interference with special event or film activity is prohibited.

5.61.095.5 Violation—Penalty.

Chapter 5.62 Patrol Systems

5.62.010 Applicability.
5.62.020 Permit and license required.

Chapter 5.64 Pawnbrokers and Secondhand Dealers

5.64.010 Definitions.
5.64.020 Permit—Required.
5.64.030 Permit—Application.
5.64.040 Permit—Fee—Bond.
5.64.050 Permit—Renewal.
5.64.070 Reports—Goods deposited.
5.64.080 Reports—Goods repledged or hypothecated.
5.64.090 Reports—Filing.
5.64.100 Reports—Confidential.
5.64.110 Reports—Record.
5.64.120 Inspection.
5.64.150 Sale of items within thirty days prohibited.
5.64.170 Accepting goods from minors prohibited.

Chapter 5.65 Swap Meets and Display Selling Events

5.65.010 Definitions.
5.65.020 Permit—Required.
5.65.030 Permit—Application.
5.65.040 Permit—Fee—Bond.
5.65.050 Hours—Swap meets.
5.65.060 Reports—Filing.
5.65.070 Reports—Confidential.
5.65.080 Inspection.
5.65.090 Swap meet—Security—Evidence of authority to sell.
5.65.100 Swap meet—List of items—Lack of authority to sell.
5.65.110 Sale of items within thirty days prohibited.
5.65.120 Swap meet—Minor vendors prohibited.

Chapter 5.66 Peddlers

5.66.010 Peddling - defined.
5.66.015 Reserved.
5.66.020 Operating conditions.

5.66.030 Peddling near schools.
5.66.040 Hours in residential districts.
5.66.045—5.66.060 Reserved.
5.66.070 Peddling within Tidelands jurisdiction.

Chapter 5.68 Pedicabs

5.68.010 Definitions.
5.68.020 Permit—Required.
5.68.030 Permit—Application.
5.68.040 Permit—Hearing and findings.
5.68.050 Permit—Contents.
5.68.060 Application/permit fees.
5.68.070 Nonemployee operation—Permitted.
5.68.080 Business license required.
5.68.090 License plate—Display.
5.68.100 Rates—Establishment.
5.68.110 Permit—Suspension or revocation.
5.68.120 Authorized service only.
5.68.130 Rates—Display.
5.68.140 Rates—Alteration.
5.68.150 Rates—Discrimination prohibited.
5.68.160 Refusal to pay fare.
5.68.170 Driver permit—Required.
5.68.180 Driver permit—Revocation.
5.68.190 Permit in vehicle.
5.68.200 Insurance.
5.68.210 Inspection of pedicabs.
5.68.220 Penalty for violation.
5.68.230 Operating regulations.

Chapter 5.69 Amusements

5.69.010 Definitions.
5.69.020 Amusement machines/Zoning regulations.
5.69.030 Arcades/Zoning regulations.
5.69.040 Inspections and miscellaneous regulations.
5.69.050 Permit required.
5.69.060 Permit application process.
5.69.070 Temporary permit.
5.69.080 Permit nontransferable.

5.69.090 Billiard/Pool hall operating regulations.
5.69.100 Suspension/Denial/Revocation.
5.69.110 Permit reapplication.

Chapter 5.70 Public Bathhouses, Health Parlors and Spas

5.70.010 Definitions.
5.70.015 Permit—Required.
5.70.020 Permit—Issuance.
5.70.025 Permit fee.
5.70.030 Permit—Premises inspection.
5.70.040 Permit—Suspension.

Chapter 5.71 Publicly Accessible Exterior Pay Telephones

5.71.010 Definitions.
5.71.020 Publicly Accessible Exterior Pay Telephones; exterior pay telephone permit required.
5.71.030 Permit required for existing Publicly Accessible Exterior Pay Telephones.
5.71.040 Permit application.
5.71.050 Prohibited locations.
5.71.060 Minimum standards for a publicly accessible exterior pay telephone permit.
5.71.070 Operating conditions.
5.71.080 Public nuisance.
5.71.090 Abatement generally.
5.71.100 PAT permit—Suspension or revocation—Hearing.
5.71.110 PAT permit—Suspension or revocation—Appeal.
5.71.120 Removal of publicly accessible exterior pay telephones.
5.71.130 Additional remedies.

Chapter 5.72 Entertainment and Similar Activities

5.72.110 Permit required and prohibited uses.
5.72.115 Definitions.
5.72.120 Permit application filing and process.
5.72.120.5 Duration of Permit.
5.72.120.6 Permits issued prior to the effective date of ordinance.
5.72.121 Permit application filing and process for adult entertainment.
5.72.125 Temporary permit.
5.72.126 Reserved.
5.72.130 Permits for occasional events.
5.72.135 Permit nontransferable.
5.72.140 Conditions of operation.

5.72.145 Suspension, denial or revocation.
5.72.150 Permit reapplication.
5.72.155 Initiative ordinance.
5.72.200 Downtown Dining and Entertainment District.
5.72.210 Boundaries of the downtown program.
5.72.220 Standard conditions.

Chapter 5.73 Sidewalk Vendors

Division I. Purpose and Definitions

5.73.010 Purpose.
5.73.020 Definitions.

Division II. Administration

5.73.030 License and permits required.
5.73.040 Sidewalk vendor business license.
5.73.050 Sidewalk vendor business permit - application and fees.
5.73.060 Sidewalk vendor business permit - investigation.
5.73.070 Sidewalk vendor business permit - term and renewal.
5.73.080 Sidewalk vendor business permit - cancellations, suspensions, revocations, denials, and appeals.
5.73.090 Health permit for sidewalk vending of food.
5.73.100 Insurance.

Division III. General Operating Conditions and Locations

5.73.110 Sidewalk vending - general operating conditions.
5.73.120 Sidewalk vending - location requirements.
5.73.130 Sidewalk vending - exception for minor vendors.

Division IV. Enforcement and Penalties

5.73.140 Enforcement.
5.73.150 Impoundment.
5.73.160 Penalties.
5.73.170 Ability-to-pay determination.
5.73.180 Severability.

Chapter 5.74 Rummage Sales

5.74.010 Definitions.
5.74.020 Permit required.
5.74.030 Application contents.

Chapter 5.75 Social Clubs

5.75.010 Definitions.
5.75.020 Permit required.
5.75.030 Permit application process.
5.75.040 Suspension/Denial/Revocation.
5.75.050 Permit nontransferable.
5.75.060 Permit reapplication.
5.75.070 Conditions of operation.

Chapter 5.76 Discount Coupon Book and Membership Sales

5.76.010 Definition.
5.76.020 Permit required.
5.76.025 Exemptions.
5.76.030 Permit—Application.
5.76.040 Grounds for denial.
5.76.050 Permit fee.

Chapter 5.77 Short-Term Rentals

5.77.010 Purpose.
5.77.020 Definitions.
5.77.030 Registration required.
5.77.040 Expiration and renewal.
5.77.050 Short-term rental regulations.
5.77.060 Short-term rental operator requirements.
5.77.070 Hosting platform responsibilities.
5.77.080 Request to Petition to restrict un-hosted short-term rentals within a geographical census tract block group.
5.77.090 Enforcement.
5.77.100 Fees.
5.77.110 Administration.
5.77.120 Severability clause.

Chapter 5.78 Tattooing

5.78.010 Definitions.
5.78.020 Permit—Application.
5.78.030 Permit—Fee.
5.78.040 Permit—Employee.
5.78.050 Inspection authorized.

Chapter 5.80 Vehicles For Hire

5.80.010 Definitions.
5.80.020 Permit—Required.
5.80.030 Permit—Application.
5.80.035 Ambulance permits.
5.80.040 Term and renewal of permits.
5.80.050 Insurance and indemnity.
5.80.060 Permit Hearing.
5.80.070 Application/permit fees.
5.80.080 Permit—Annexed areas.
5.80.090 Permit decal.
5.80.100 Permit—Suspension or revocation.
5.80.110 Permit—Business license issuance.
5.80.120 Authorized service only.
5.80.130 Service availability.
5.80.135 Posting of customer service notice.
5.80.140 Rates—Establishment.
5.80.150 Rates—Enforcement.
5.80.160 Rates—Display.
5.80.170 Rates—Alteration.
5.80.180 Rates—Discrimination prohibited.
5.80.190 Taximeters.
5.80.200 Waiting time designated.
5.80.210 Receipt on request.
5.80.220 Refusal to pay fare.
5.80.230 Route—Number of passengers.
5.80.240 Cruising—Loading.
5.80.250 Trip sheet and daily report.
5.80.260 Numbering.
5.80.270 Inspection of vehicles.
5.80.280 Name or coloration.
5.80.290 Identity lights.
5.80.292 Taxicab driver appearance standard.
5.80.300 Advertising.
5.80.310 Taxi driver permit—Application.
5.80.315 Driver permit—Mandatory controlled substances and alcohol testing certification.
5.80.320 Driver permit—Revocation.
5.80.330 ID permit in vehicle.

5.80.332 Misuse of driver's ID.
5.80.340 Unlicensed operator prohibited.
5.80.350 Carrier or employee operation.
5.80.360 Stands.
5.80.370 Emergency or temporary service.
5.80.380 Notice method.
5.80.390 Penalty for violation.
5.80.400 Wheelchair Accessible Vehicles.
5.80.410 Vehicle Safety Features.
5.80.420 Passenger Transport; Wheelchairs, Packages, and Service Animals.
5.80.430 Taxicab Operator Driver's License.
5.80.440 Expedited Driver Activation.

Chapter 5.81 Tobacco Retail Permit

5.81.005 Purpose and intent.
5.81.010 Definitions.
5.81.020 Permit—Required.
5.81.030 Permit—Application.
5.81.040 Permit—Issuance.
5.81.050 Permit—Fees.
5.81.060 Permit—Term and renewals.
5.81.070 Permit—Retailing requirements and prohibitions.
5.81.080 Permit—Retailing of electronic cigarettes and electronic cigarette paraphernalia.
5.81.090 Permit—Violations and penalties.
5.81.100 Severability.
5.81.110 Administration and enforcement.

Chapter 5.82 Tow Operations

5.82.010 Definitions.
5.82.020 Towing operation permit—Required.
5.82.030 Towing operation permit—Application.
5.82.031 Permit nontransferable.
5.82.035 Tow operation permit renewal.
5.82.040 Issuance and display of decal.
5.82.050 Towing operation permit—Grounds for denial/Revocation/Suspension.
5.82.055 Permit—Reapplication.
5.82.060 Inspections.
5.82.070 Tow truck driver—Permit required.
5.82.100 Tow truck driver permit—Grounds for denial/Revocation/Suspension.

5.82.120 Operating rules and regulations.
5.82.140 Storage location.

Chapter 5.86 Water Taxis, Charter Boats and Similar Vessels

5.86.010 Definitions.
5.86.020 Permit—Required.
5.86.030 Permit—Application.
5.86.040 Permit—Hearings and findings.
5.86.050 Permit—Contents.
5.86.060 Rates—Establishment.
5.86.070 Permit—Suspension or revocation.
5.86.080 Authorized service only.
5.86.090 Rates—Display.
5.86.100 Rates—Alteration.
5.86.110 Rates—Discrimination prohibited.
5.86.120 Insurance.
5.86.130 Inspection of vessels.

Chapter 5.87 Reserved

Chapter 5.88 Smoking Lounges

5.88.010 Purpose and intent.
5.88.020 Definitions.
5.88.030 Compliance required.
5.88.040 Business license, tobacco retail permit and smoking lounge permit—Required.
5.88.050 Smoking lounge permit application process.
5.88.060 Smoking lounge permit—Issuance.
5.88.065 Smoking lounge permit—Limit on number of permits and nontransferable.
5.88.070 Smoking lounge permit—Fees.
5.88.080 Inspections.
5.88.090 Smoking lounge permit; suspension; revocation; denial; hearing.
5.88.100 License and permits display.
5.88.110 Health warning signage.
5.88.120 Age restriction and signage.
5.88.130 Sale of food and beverages prohibited.
5.88.140 Ventilation requirement.
5.88.150 Application to existing businesses.
5.88.160 Severability.
5.88.170 Administration and enforcement.

Chapter 5.89 Reserved

Chapter 5.90 Medical Marijuana Businesses

5.90.010 Purpose and intent.
5.90.020 Application and definitions.
5.90.030 Medical Marijuana Business License Permit.
5.90.040 Security.
5.90.050 Persons prohibited as permittees and business managers.
5.90.060 Medical Marijuana Dispensary Operating Conditions and Restrictions.
5.90.070 Priority of medical marijuana dispensaries.
5.90.080 Vacant dispensary allocation.
5.90.090 Medical marijuana cultivation operating conditions and restrictions.
5.90.100 Medical marijuana manufacturing operating conditions and restrictions.
5.90.110 Medical marijuana distributor operating conditions and restrictions.
5.90.120 Laboratory testing and testing laboratories.
5.90.130 Reporting requirements.
5.90.140 Transportation and delivery.
5.90.150 License transferable and required conduct.
5.90.160 Maintenance of records.
5.90.170 Inspection authority.
5.90.180 Term and renewal of business license permit.
5.90.190 Existing medical marijuana dispensaries.
5.90.200 Prohibited activity.
5.90.210 Violations and enforcement.
5.90.220 Acceptance and procedure of business license permit applications.
5.90.230 Medical marijuana business license permit application.
5.90.240 Suspension, penalty, revocation and appeals process.
5.90.250 Compliance and changes to applicable law.
5.90.260 Establishment of a Medical Marijuana Task Force.
5.90.270 City Manager authorized to issue rules.
5.90.280 Severability.
5.90.290 Local enforcement and penalties for illegal marijuana businesses.
5.90.300 Implementation of the Medicinal and Adult-Use Cannabis Regulation and Safety Act.
5.90.310 Implementation of the Cannabis Social Equity Program.

Chapter 5.91 Premium Pay for Grocery Workers

5.91.005 Purpose.
5.91.010 Short title.
5.91.020 Definitions.

5.91.030 Grocery worker coverage.
5.91.040 Hiring entity coverage.
5.91.050 Premium pay requirement.
5.91.060 Grocery worker and consumer protections.
5.91.070 Notice of rights.
5.91.080 Hiring entity records.
5.91.090 Retaliation prohibited.
5.91.100 Violation.
5.91.110 Remedies.
5.91.120 Private right of action.
5.91.130 Encouragement of more generous policies.
5.91.140 Other legal requirements.
5.91.150 Severability.

Chapter 5.92 Adult-Use Cannabis Businesses and Activities

Division I. Purpose and Definitions

5.92.010 Purpose and intent.
5.92.020 General provisions.
5.92.030 Definitions.

Division II. Administration

Subdivision I. General Authority

5.92.110 Authority to delegate.
5.92.120 Authority to order an administrative hold of cannabis goods.
5.92.130 Authority to make reasonable rules, policies, and procedures.
5.92.140 Authority of the Director of Financial Management.

Subdivision II. Permit Application and Administration

5.92.210 Business license and permit required.
5.92.215 Permit application required filing.
5.92.220 Permit application investigation.
5.92.225 Co-location of adult-use and medicinal commercial cannabis activities.
5.92.240 Effect of other permits or licenses.
5.92.245 Incomplete applications.
5.92.250 One applicant per property address.
5.92.255 Withdrawal of application.
5.92.260 Revocable privilege.
5.92.265 Persons prohibited as owners.
5.92.270 Limitations on liability.

5.92.275 Payment of fees.

Subdivision III. Permit Terms and Modifications

5.92.310 Term and renewal of permit.
5.92.320 Permit changes or modifications generally.
5.92.330 Change of address.
5.92.340 Change of ownership.
5.92.350 Change in business name.
5.92.360 Physical modification of premises.

Division III. General Operating Conditions

Subdivision I. Cannabis Facility and Location Requirements

5.92.410 Compliance.
5.92.415 Right to use and occupy premises.
5.92.420 Location requirements.
5.92.425 Noncompliant locations.
5.92.430 Measurement of distance between sites.
5.92.435 Premises requirements.
5.92.440 Business identification signage.
5.92.445 Fire prevention system.
5.92.450 General sanitation requirements.
5.92.455 Cannabis public health permit.

Subdivision II. General Operating Requirements

5.92.510 Community Liaison.
5.92.515 Display of permit and license.
5.92.520 Age restrictions.
5.92.525 No direct sales to the public.
5.92.530 Advertising and marketing.
5.92.535 Waste management.
5.92.540 Ventilation and filtration system.
5.92.545 Discourage illegal, criminal, or nuisance activities.
5.92.550 Recordkeeping.
5.92.555 Notification to City.

Subdivision III. Cannabis Goods

5.92.610 Handling of cannabis goods.
5.92.620 Storage of cannabis goods.
5.92.630 Laboratory testing of cannabis goods.

5.92.640 Quality assurance of cannabis goods.
5.92.650 Adulterated or misbranded cannabis goods.

Subdivision IV. Security

5.92.710 Security standards.
5.92.715 Limited-access areas.
5.92.720 Identification badges.
5.92.725 Secure transportation area.
5.92.730 Digital video surveillance system.
5.92.735 Security records.
5.92.740 Security alarm system.
5.92.745 Commercial-grade locks.
5.92.750 Security barriers.
5.92.755 Remain secure during power outage.
5.92.760 Visibility.
5.92.765 Building design.

Subdivision V. Prohibited Activities

5.92.810 Consumption of cannabis prohibited; signage required.
5.92.820 Alcohol or tobacco prohibited.
5.92.830 Physician evaluations prohibited.
5.92.840 Weapons or firearms prohibited.
5.92.850 Generators prohibited.
5.92.860 Outdoor storage of cannabis goods prohibited.
5.92.870 Drive-through services prohibited.

Division IV. Dispensary Operating Conditions

5.92.910 Compliance.
5.92.915 Hours of operation.
5.92.920 Security personnel.
5.92.925 Protocols for individuals entering the premises.
5.92.930 Point-of-sale tracking required.
5.92.935 Taxes.
5.92.940 Cannabis goods.
5.92.945 Daily limit per person.
5.92.950 No free adult-use cannabis goods.
5.92.955 Interior signage required.
5.92.960 Delivery services.
5.92.965 Responsible Vendor Training Pilot Program.

Division V. Cultivation Operating Conditions

5.92.1010 Compliance.
5.92.1015 Outdoor cultivation prohibited.
5.92.1020 Maximum canopy size.
5.92.1025 Extension cords prohibited.
5.92.1030 Interior lighting.
5.92.1035 Environmental control systems.
5.92.1040 Water source.
5.92.1045 Carbon dioxide testing.
5.92.1050 Storage and use of compressed gas.
5.92.1055 Pesticides.
5.92.1060 Packaging and labeling.
5.92.1065 Accurate weights and measures.

Division VI. Manufacturing Operating Conditions

5.92.1110 Compliance.
5.92.1115 Additional ventilation requirements.
5.92.1120 Sanitation standards.
5.92.1125 Quality and preventative controls.
5.92.1130 Standard operating procedures.
5.92.1135 Fire Code Official approval required.
5.92.1140 Vacuum ovens.
5.92.1145 Doors to extraction room.
5.92.1150 Refrigerators.
5.92.1155 Closed loop system required.
5.92.1160 Volatile and nonvolatile solvents permitted.
5.92.1165 Change in solvent.
5.92.1170 Storage and use of compressed gas.
5.92.1175 Hazardous material requirements.
5.92.1180 Edible cannabis products.
5.92.1185 Food handler certification.
5.92.1190 Packaging and labeling.
5.92.1195 Accurate weights and measures.

Division VII. Shared Use Manufacturing Operating Conditions

5.92.1210 Compliance.
5.92.1215 Equity licenses prioritized.
5.92.1220 Principal Licensees.
5.92.1225 Operator Licensees.

5.92.1230 Exemptions.
5.92.1235 Use agreements.
5.92.1240 Designated areas.
5.92.1245 Common-use areas.
5.92.1250 Occupancy schedules.
5.92.1255 Facility restrictions.
5.92.1260 Facility modifications.
5.92.1265 Cannabis waste.
5.92.1270 Product recalls or embargoes.
5.92.1275 Discontinuing operations.
5.92.1280 Violations.

Division VIII. Distribution Operating Conditions

5.92.1310 Compliance.
5.92.1315 Transport Only Distributor.
5.92.1320 Storage.
5.92.1325 Quality assurance.
5.92.1330 Transport.
5.92.1335 Accurate weights and measures.
5.92.1340 Records.

Division IX. Testing Laboratory Operating Conditions

5.92.1410 Compliance.
5.92.1415 No other employment or interest.
5.92.1420 Laboratory employee requirements.
5.92.1425 Certificate of accreditation required.
5.92.1430 Standard operating procedures.
5.92.1435 Chain of custody controls.
5.92.1440 Certificate of Analysis.
5.92.1445 Annual audit.
5.92.1450 Transportation and storage of testing samples.
5.92.1455 Destruction of samples.
5.92.1460 Additional ventilation requirements.
5.92.1465 Hazardous material requirements.
5.92.1470 Records.

Division X. Enforcement and Penalties

5.92.1510 Violations generally.
5.92.1515 Remedies cumulative.
5.92.1520 Declaration of public nuisance.

5.92.1525 Liability of employees and agents.
5.92.1530 Liability of property owners.
5.92.1535 Liability of costs, fines, and fees.
5.92.1540 Permit suspension, revocation, or denials.
5.92.1545 Appeal of permit denial.
5.92.1550 Factors for suspension or revocation.
5.92.1555 Permit reapplications.
5.92.1560 Criminal penalty.
5.92.1565 Administrative civil penalties.
5.92.1570 Actions for injunctive relief and civil penalties.
5.92.1575 Liens and special assessments.
5.92.1580 Prohibited premises sites due to prior illegal cannabis operations.
5.92.1585 Disconnection of utilities.
5.92.1590 Medical Marijuana Task Force.
5.92.1595 Severability.

Division XI. Equity Program

5.92.1610 Equity employee eligibility.
5.92.1615 Equity applicant eligibility.
5.92.1620 Equity business eligibility.
5.92.1625 Application required.
5.92.1630 Incomplete applications.
5.92.1635 Application rejection.
5.92.1640 Assistance available to equity applicants.
5.92.1645 Assistance available to equity businesses.
5.92.1650 Assistance per household.
5.92.1655 Equity business transfer of ownership requirements.
5.92.1660 Requirements for all Adult-Use Cannabis Businesses.
5.92.1665 Authority to develop and implement Equity Program.

Division XII. Delivery-Only Dispensary Operating Conditions

5.92.1710 Compliance.
5.92.1715 Hours of operation.
5.92.1720 Point-of-sale tracking required.
5.92.1725 Taxes.
5.92.1730 Cannabis goods.
5.92.1735 No free adult-use cannabis goods.
5.92.1740 Delivery services.
5.92.1745 Responsible vendor training pilot program.

Division XIII. Cannabis Special Events

5.92.1810 Compliance.
5.92.1815 Special Event Permit and Application.
5.92.1820 Number of Special Event Permits Per Year.
5.92.1825 State Approval.
5.92.1830 Temporary Waiver of Smoking in Public Spaces.
5.92.1835 Local Retailer Requirements.
5.92.1840 Equity Plan.
5.92.1845 Promotion of Responsible Cannabis Consumption.
5.92.1850 Enforcement.

Chapter 5.93 Grocery and Drug Store Staffing Standards for Self-Service Checkout Stations

5.93.010 Purpose.
5.93.020 Short Title.
5.93.030 Definitions.
5.93.040 Self-Service Checkout requirement.
5.93.050 Self-Service Checkout staffing requirement.
5.93.060 Enforcement.
5.93.070 Retaliatory action prohibited.
5.93.080 Severability.

Chapter 5.94 Reserved

Chapter 5.95 Third-Party Food Delivery Service Fees

5.95.010 Purpose.
5.95.020 Definitions.
5.95.030 Prohibitions.
5.95.040 Required disclosures.
5.95.050 Enforcement.
5.95.060 Scope of Ordinance.

Chapter 5.96 Reserved

PART I. GENERAL PROVISIONS

CHAPTER 5.02 PURPOSE AND DEFINITIONS

5.02.010 Purpose.

The purpose of this Title 5 is to identify those businesses, trades and professions conducted and carried on in the City of Long Beach that require local regulation in order to promote and protect the public health, safety and welfare of Long Beach and its citizens. It is the further purpose of this Title 5 to set forth the specific standards and criteria under which such businesses, trades and professions shall be conducted and regulated within the City and, as to those businesses, trades and professions for which a permit is required hereunder, to set forth the procedures and conditions for applying for such a permit.

The provisions of this Title 5 are regulatory, and all requirements set forth, including those for a permit hereunder, if any, and any regulatory fees levied pursuant to this Title 5, are in addition to any other requirements, monetary or otherwise, that may be applied to any business, trade or professions by any other provision of law, including, but not limited to, Chapter 3.80 of the Long Beach Municipal Code. (Ord. C-6260 § 1 (part), 1986)

5.02.020 Definitions.

For the purpose of this Title 5, certain words and phrases are defined and certain words and phrases shall be construed as set forth in this Section 5.02.020, unless it is apparent from their context that a different meaning is intended or unless they or any other terms are specifically defined in one (1) or more of the Chapters of this Title, in which case the Chapter definitions shall be controlling in such Chapters.

A. "Applicant" means any person who applies for a business license or permit.

B. "Business" means each and every business, commercial or industrial enterprise, trade, profession, occupation, vocation, calling or any means of livelihood, whether or not carried on for gain or profit.

C. "Business license" means a license issued pursuant to Chapter 3.80 evidencing the payment of a business license tax for the carrying on of a business in the City of Long Beach.

D. "Business permit" or "permit" means a permit, if required, issued pursuant to this Title 5 evidencing compliance by a licensed business in the City of Long Beach with the regulatory provisions of this Title 5.

E. "Permit identification card" means a card, if required, issued pursuant to this Title 5, evidencing the issuance to a permittee of a valid permit and setting forth information as may be required pursuant to the provisions of this Title 5.

F. "Person" means any domestic or foreign corporation, firm, association, syndicate, joint stock company, partnership of any kind, joint venture, club, business or common law trust, society, individual, estate, receiver, retirement plan, trustee, or any other group or combination acting as a unit. (Ord. C-7423 § 1, 1996: Ord. C-6325 § 11, 1986; Ord. C-6260 § 1 (part), 1986)

PART II. ADMINISTRATION, ENFORCEMENT AND PENALTIES

CHAPTER 5.04 ADMINISTRATION

5.04.010 Application—Required.

A. Each applicant for a permit pursuant to this Title 5 shall file a written statement with the City upon prescribed forms indicating the type of activity to be conducted, officers of the firm and sufficient information as requested by the City to enable determination as to issuance or nonissuance of the permit, and a separate permit shall be obtained for each branch establishment or separate office or place for carrying on any business or pursuit within the City.

B. If applicant has not provided all required information and paid the necessary application fees within sixty (60) days, the application will be deemed void and of no further force and effect. (Ord. C-7423 § 13, 1996: Ord. C-6260 § 1 (part), 1986)

5.04.020 Application—Investigation.

The Director of Financial Management shall thereupon refer such application to the appropriate departments of the City in order that it may be ascertained whether or not the business proposed to be conducted or the premises in which it is proposed to locate such business, will comply with applicable laws and ordinances. (Ord. C-7423 § 13, 1996: Ord. C-6260 § 1 (part), 1986)

5.04.030 Application—Rejection.

In the event that a particular department of the City rejects an application for the reason that such business or the location at which it is proposed to be conducted will not comply with applicable laws and ordinances, no permit shall be issued, and the application shall be denied. (Ord. C-7461 § 10, 1997)

5.04.040 Fees.

A. Each applicant for a business permit shall pay a permit fee as set forth in the business permit fee schedule established by resolution of the City Council. Such fees are imposed for the purpose of reimbursing the City for the costs incurred in investigating, issuing and administering the permits issued pursuant to this Title 5, and they shall be nonrefundable if any costs in connection with the application/permit have been incurred by the City.

B. All permit fees provided for in this Title 5 shall be due and payable in advance. The applicant or permittee who fails to pay regulatory or investigation fees within thirty (30) days of the due date shall be subject to penalty fees in the same manner as in Section 3.80.422 of the Long Beach Municipal Code. (Ord. C-7423 § 13, 1996: Ord. C-6260 § 1 (part), 1986)

5.04.050 Health inspection, fees and permit required.

A. Notwithstanding any other provisions of this Title 5 or Chapter 3.80 of this Code, the health inspection fees and permit set forth in this Section shall be applicable at all times as to classifications of businesses, occupations, institutions, or acts set forth in division 104, part 7 of the California Health and Safety Code, commencing with section 113700 and as established by resolution of the City Council for the Division of Environmental Health for health services.

B. No City business license shall be originally issued, nor shall any City business license be transferred from one (1) site to another, for any business, occupation, institution or act enumerated in Subsection 5.04.050.A, unless the place where or plans for said business, occupation, institution or act is to be conducted, or the compact mobile food facility (as defined by the California Health and Safety Code) is first inspected by the Health Officer or duly authorized representative, and unless the application for such original City business license, or such transfer is first approved by the Health Officer, fee paid and a permit to operate issued therefor.

C. The permit and the health inspection fees required to be paid by this Section with respect to a classification listed for which a business license fee is also required by this Code may be prorated in the same manner as the fee for such business license. In all cases where a business license fee is not required to be paid for the carrying on of a classification listed in this Section, the permit and health inspection fee may be prorated in the same manner as that specified for license issued on a fiscal year basis as provided in this Code.

D. All fees provided for in this Section shall be due and payable in advance, and any person who fails to pay any such fee provided in this Section within thirty (30) days after the same has become due must pay, in addition thereto, a sum equal to twenty-five percent (25%) of the amount of the original fee.

E. The fees referred to in this Section shall be established by a resolution of the City Council which may be consolidated with that provided for in Section 5.04.040.

F. After building plans or compact mobile food facility (as defined by the California Health and Safety Code) plans have been checked and are subsequently so revised as to necessitate rechecking, the Health Officer shall require the applicant to pay a rechecking fee of fifty percent (50%) of the plan check fee set forth in this Section.

G. Every person engaging in, conducting, managing or carrying on at the same time more than one (1) of the businesses, occupations, institutions or acts mentioned in Subsection 5.04.050.A, whether located at the same place or not, shall be required to pay the fee and obtain a permit to operate for each such business, occupation, institution or act unless exempted by the Health Officer or by resolution of the City Council.

H. The permit to operate shall not be issued to a fictitious name. All permits must be issued in the true name of the individual, in the true names of the persons in a partnership or the exact name which appears in the articles of incorporation.

I. The permit to operate required by this Section shall not be issued for a period greater than one (1) year. A permit to operate shall not be issued for less than one-fourth (¼) of a year.

Fees required by this Section for ten dollars ($10.00) or less shall not be prorated. The fee for a public swimming pool which operates five (5) months or more of a year shall not be prorated.

When prorating for more than one-quarter (¼), the quarters shall run concurrently.

J. Every permit to operate required by this Section shall be conspicuously displayed on the compact mobile food facility (as defined by the California Health and Safety Code) or in the place of business, occupation, institution or act as approved by the Health Officer.

K. A fee or penalty fee shall not be refunded if the business, occupation, institution or act, required by this Section to pay such fees, operates for twenty-four (24) hours or more.

No fee shall be refunded for the following businesses, occupations, institutions, or acts:

1. Add a partner to permit;
2. Backflow prevention device;
3. Copy of official records;
4. Hazardous waste spill/cleanup;
5. Noise business license inspection;
6. Noise environmental impact report;
7. Noise permit;
8. Noise variance;
9. Plan check;
10. Site transfer of permit;
11. Solid waste facilities applications;
12. Well permit;
13. Others approved by the City Council or Health Officer.

However, any overcharges or over remittances of one dollar and one cent ($1.01) or more shall be refunded provided that any refund of one thousand dollars ($1,000.00) or more shall require the prior approval of the City Council. (ORD-24-0002 § 5, 2024; Ord. C-7799 § 1, 2002; Ord. C-7423 § 13, 1996: Ord. C-6260 § 1 (part), 1986)

5.04.055 Permit identification card.

A. Every person issued a permit pursuant to this Title 5 may be required to display a permit identification card in a visible position upon his/her person when working and produce the card for inspection upon request. In the event of loss of the card, the City may charge a replacement or reissuance fee in an amount established by the City Council by resolution to recover its cost of replacement.

B. No person shall reproduce, duplicate, copy or alter a permit identification card for the purpose of circumventing the display requirement of this Section or for giving a false or misleading impression that any duplication of an original identification card is valid. The permit identification card shall be maintained in good condition or it shall be replaced.

C. The permit identification card is not transferable and is only valid when presented with an official California identification card.

D. Every person holding a permit identification card required by this Title 5 who changes the location of his/her place of business shall, prior to engaging in such business at the new location, apply for and receive a new permit identification card.

E. Every person holding a permit identification card shall immediately surrender it to the Chief of Police, upon termination of employment, expiration of the card or suspension or revocation of the permit.

F. Any use of the permit identification card for purposes other than as required by this Chap-

ter is prohibited. (Ord. C-7423 § 13, 1996: Ord. C-6325 § 12, 1986)

5.04.060 Photographs.

Any photographs required in connection with any permit issued shall be in good condition so as to be easily identified with the applicant or permittee and shall have been taken within the last six (6) months. New photographs must be furnished when a permit is renewed. (Ord. C-7423 § 13, 1996: Ord. C-6260 § 1 (part), 1986)

5.04.070 Issuance.

A. Upon receipt of written notice from the departments, pursuant to Section 5.04.020, that the business and the location at which the business will be conducted comply with applicable laws and ordinances, a permit may be issued by the Director of Financial Management.

B. Concerned departments shall render a recommendation to the Commercial Services Bureau to approve, conditionally approve, or deny the application within sixty (60) days after a completed application has been filed. Where a background investigation is required and where circumstances beyond the control of the City justifiably delay approval or denial within the prescribed period, the Chief of Police may provisionally approve a temporary permit conditioned as the Chief of Police deems necessary if he/she finds that a prolonged pending delay in permanent permit approval is to be anticipated, and it appears likely that a permit will be granted at the end of that period. (Ord. C-7423 § 13, 1996: Ord. C-6260 § 1 (part), 1986)

5.04.090 Bond—Termination.

The liability on any surety bond deposited with the City pursuant to the provisions of this Chapter may be terminated upon the filing with the Director of Financial Management by the surety on the bond of a written notice to the City wherein it shall be stated that the surety intends to terminate the liability upon the bond. Termination is to become effective thirty (30) days from and after the day upon which the notice of intention to terminate liability is filed with the Director of Financial Management; provided, however, that in no case shall the termination of liability by the surety on any bond affect any liability incurred prior to the date of termination thereof. (Ord. C-7423 § 13, 1996: Ord. C-6260 § 1 (part), 1986)

5.04.100 Use of permit by unauthorized person.

No person holding a permit required by this Chapter shall allow any unauthorized person to use said permit or to use the name of said permittee for the purpose of evading any provision of this Title 5. (Ord. C-7423 § 13, 1996: Ord. C-6260 § 1 (part), 1986)

5.04.120 Display.

A. Every person having a permit issued under this Title 5 shall prominently display such permit. If such business is operated from a vehicle or a boat, the vehicle or boat shall have affixed thereon an identifying decal issued by the City. In the event of loss of such decal, the City shall charge a replacement fee in an amount established by the City Council by resolution.

B. No person shall reproduce, duplicate, copy or alter an original business permit for the purpose of circumventing the prominent display requirement of this Section or giving a false or misleading impression that any duplication of an original business permit is valid and that the appropriate business permit fee therefor has been paid.

C. No person who has a valid permit issued by the City in his/her possession or under his/her control shall fail to exhibit the same on demand. (Ord. C-7423 § 13, 1996: Ord. C-6260 § 1 (part), 1986)

CHAPTER 5.06 CANCELLATIONS, SUSPENSIONS, REVOCATIONS, DENIALS AND APPEALS

5.06.010 Identification of controlling procedures.

A business permit may be suspended, revoked or denied for any reason stated in Section 5.06.020

of the Long Beach Municipal Code or within the specific section of this Title 5 pertaining to the business. (Ord. C-7423 § 14, 1996: Ord. C-6325 § 13 (part), 1986: Ord. C-6260 § 1 (part), 1986)

5.06.020 Suspension/Revocation/Denial.

A. Any permit to do business in the City issued pursuant to this Title 5 may be suspended, revoked or denied in the manner provided in this Section upon the following grounds:

1. The permittee or any other person authorized by the permittee has been convicted of violation of any provision of this Code, State or Federal law arising out of or in connection with the practice and/or operation of the business for which the permit has been granted. A plea or verdict of guilty, or a conviction following a plea of nolo contendere is deemed to be a conviction within the meaning of this Section. The City Council may order a permit suspended or revoked, following such conviction, when the time for appeal has elapsed, or the judgment of conviction has been affirmed on appeal, or an order granting probation is made suspending the imposition of sentence, irrespective of a subsequent order under the provisions of Section 1203.4 of the California Penal Code allowing such a person to withdraw his/her plea of guilty and to enter a plea of not guilty, or setting aside the verdict of guilty, or dismissing the accusation, information or indictment;

2. For any grounds that would warrant the denial of the issuance of such permit if application therefore was being made;

3. The permittee or any other person under his/her control or supervision has maintained a nuisance as defined in Section 21.15.1870 of the Long Beach Municipal Code which was caused by acts committed on the permitted premises or the area under the control of the permittee;

4. The permittee, his/her employee, agent or any person connected or associated with permittee as partner, director, officer, stockholder or manager has knowingly made any false, misleading or fraudulent statement of material fact in the application for the permit required under the provisions of this Code;

5. The permittee has failed to comply with any condition which may have been imposed as a condition of operation or for the issuance of the permit required under the provisions of this Code;

6. The permittee has failed to pay any permit fees that are provided for under the provisions of this Code within sixty (60) days of when the fees are due.

B. Upon receipt of satisfactory evidence that any of the above grounds for suspension or revocation of said permit exist, the permittee shall be notified in writing that a hearing on suspension or revocation shall be held before the City Council, the grounds of suspension or revocation, the place where the hearing will be held, and the date and time thereof which shall not be sooner than ten (10) days after service of such notice of hearing.

C. All notices provided for in this Section shall be personally served upon the permittee or left at the place of business or residence of such permittee with some person over the age of eighteen (18) years having some suitable relationship to the permittee. In the event service cannot be made in the foregoing manner, then a copy of such notice shall be mailed, postage fully prepaid, addressed to the last known address of such permittee at his/her place of business or residence at least ten (10) days prior to the date of such hearing.

D. Whenever a business permit has been revoked/or denied under the provisions of this Section, no other application by such permittee for a business permit to conduct a business or operate in the City shall be considered for a period of one (1) year from the date of such revocation or denial. (Ord. C-7423 § 14, 1996: Ord. C-6325 § 13 (part), 1986: Ord. C-6260 § 1 (part), 1986)

5.06.025 Cancellation.

Any permit issued pursuant to an application made under this Title 5 may be cancelled by the Director of Financial Management, without hearing, if:

A. The permittee permanently discontinues business operations under the permit; or

B. The permittee requests cancellation; or

C. The business operated under the permit is abandoned for a period in excess of six (6) months. Cancellation pursuant to this Subsection shall be made only after notice of cancellation has been mailed to the permittee at the address shown on the most recent permit application, thirty (30) days has elapsed from the date of such mailing and permittee has failed to respond to said notice with a statement setting forth a valid reason why such permit should not be cancelled. (Ord. C-7423 § 14, 1996)

5.06.030 Appeals from permit denial.

An applicant for a business permit whose application for such permit has been denied shall be notified of the denial in writing. Within ten (10) days after such denial, the applicant may appeal therefrom to the Council by filing with the Director of Financial Management a notice of such appeal setting forth the decision and the grounds upon which he/she deems himself/herself aggrieved thereby. Said applicant shall pay to the Director of Financial Management at the time of filing said notice of appeal a filing fee in an amount to be set by resolution of the City Council. The Director of Financial Management shall thereupon make a written report to the Council reflecting such determination denying the permit. The Council shall, within thirty (30) days following the filing of said appeal, set said appeal for hearing to be held not less than ten (10) days nor more than thirty (30) days thereafter and such hearing may for good cause be continued by the order of the Council. Upon the hearing of the appeal the Council may overrule or modify the decision appealed from and enter any such order or orders as are in harmony with this Title 5, and such disposition of the appeal shall be final. (Ord. C-7423 § 14, 1996: Ord. C-6325 § 13 (part), 1986: Ord. C-6260 § 1 (part), 1986)

CHAPTER 5.08 ENFORCEMENT AND PENALTIES

5.08.010 Inspectors.

A. The Business Services Officer, the Commercial Services Bureau Manager as well as those employees of the City holding the classified positions of Business License Supervisor and Business License or Permit Inspector shall have the duty of enforcing the provisions of this Title 5 as well as Chapter 3.80. They are authorized and directed to enter, free of charge, at any reasonable time, any place of business to verify compliance with the provisions of this Title 5 and Chapter 3.80, and they are authorized and directed, pursuant to California Penal Code Section 836.5, to arrest persons and to prepare, issue and deliver to any such arrested person written notice to appear in court and to release such person from custody upon receiving from him/her written promise to appear in court for any violation or violations of any section or sections of this Title 5 or Chapter 3.80, provided, however, that no person, shall be arrested for any violation of Chapter 5.73.

B. Nothing in this Section is intended to or shall operate to change or shall have the effect of changing the status of business licensing personnel from a public or miscellaneous officer or employee to an individual peace officer or safety member or to a class of peace officer or safety member for purposes of retirement, worker's compensation or similar injury or death benefits, or any other employee benefit or benefits to which said officer or employee would not have been entitled to as a public employee prior to the adoption of this Section. (ORD-24-0002 § 6, 2024; Ord. C-7423 § 15, 1996: Ord. C-6260 § 1 (part), 1986)

5.08.020 Duty of Police Officers/Civilian Police personnel.

All Police Officers and any civilian employee of the Police Department assigned to investigate business licenses and permits are hereby appointed inspectors of permits, and, in addition to their other duties, are expressly required to examine all places of business and persons required to obtain a business license as required by Long Beach Municipal Code Chapter 3.80 or a permit under this Title 5 and to see that such permits and/or licenses are obtained. The above-named persons shall have and exercise the power, first, to make arrests for the violation of any of the provisions of Chapter

3.80 or of this Title 5, provided, however, that no person, shall be arrested for any violation of Chapter 5.73; and, second, to enter, free of charge, at any reasonable time, any place of business for which a license is required by Chapter 3.80 or a permit is required by this Title 5, and to demand the exhibition of such permit or license for the current term by any person engaged or employed in the transaction of such business. If such person then and there fails to exhibit such permit or license, such person shall be liable for the penalty or subject to enforcement procedures provided for this violation. It is the duty of the Police Officers and designated civilian personnel to cause complaints to be filed against all persons violating any of the applicable provisions of Chapter 3.80 or of this Title 5. The Chief of Police is directed to carry into effect the provisions of this Section. (ORD-24-0002 § 6, 2024; Ord. C-7423 § 15, 1996: Ord. C-6260 § 1 (part), 1986)

5.08.030 Penalties.

A. Every person who fails to obey and comply with any provisions of this Title 5 or Chapter 3.80 or who violates any such provision or who causes such failure, disobedience or violation, shall be deemed guilty of a misdemeanor and shall be subject to the penalties as set forth in Section 1.32.010, with the exception of violations of Chapter 5.73, which are subject to the penalties enumerated in that Chapter.

B. The owner, manager, or operator of any business, occupation, institution or act enumerated in Subsection A above is responsible for any violation by an employee of any provisions of this Section. Any violation arising from any business, occupation, institution or act enumerated in Subsection A of this Section, shall be deemed a violation for which the owner, manager or operator of each such business, occupation, institution or act is responsible. (ORD-24-0002 § 6, 2024; Ord. C-7423 § 15, 1996: Ord. C-6260 § 1 (part), 1986)

5.08.040 Criminal procedure not to satisfy civil claim.

Neither the arrest, prosecution, conviction, imprisonment, or payment of any fine for the violation of this Title 5 shall satisfy or diminish the authority of the City to institute civil action seeking enforcement of any or all of the provisions of this Title 5. (ORD-24-0002 § 6, 2024; Ord. C-7423 § 15, 1996: Ord. C-6260 § 1 (part), 1986)

5.08.050 Civil actions.

Any person required to comply with any or all of the provisions of this Title 5 shall be liable in an action filed by the City in any court of competent jurisdiction in order to enforce such provision and to pay such reasonable costs of the suit as the court may deem appropriate. (ORD-24-0002 § 6, 2024; Ord. C-7423 § 15, 1996: Ord. C-6260 § 1 (part), 1986)

PART III. PARTICULAR BUSINESS REGULATIONS

CHAPTER 5.09 EMPLOYMENT DISCRIMINATION

5.09.010 Definitions.

As used in this Chapter:

"Business establishment" means any person that offers goods or services to the general public. An otherwise qualifying organization which has membership requirements shall be considered to be a "business establishment" if the following criteria are met:

1. Its membership requirements consist only of the payment of fees; or

2. Its membership standards are standards under which a substantial portion of the residents of the City could qualify; or

3. Its membership standards constitute an effort to avoid compliance with the requirements of the ordinance codified in this Chapter through subterfuge by creating membership standards with no bona fide relationship to the purpose or nature of the organization.

The term "business establishment" shall not include the following: (a) any religious association or corporation not organized for private profit; (b) the federal government or any agency thereof or

the State government or any agency or local subdivision thereof, including but not limited to, Counties, Cities, districts, authorities and agencies.

"Employee" does not include any individual employed by his or her parents, spouse, or child, or any individual employed under a special license in a nonprofit sheltered workshop or rehabilitation facility.

"Gender identity" means an individual's sense of being either male or female, something other or in-between.

"Person" means any natural person, and any firm, corporation, partnership or other organization, association or group of persons, however organized.

"Sexual orientation" means heterosexuality, homosexuality or bisexuality. (ORD-08-0017 § 1, 2008: Ord. C-6408 § 1 (part), 1987)

5.09.020 Discrimination prohibited.

A. No business establishment within the City or operating within the City which employs a minimum of five (5) employees shall discriminate against any person by failing or refusing to hire or by disciplining or discharging any person or in any manner discriminating against any person with respect to compensation, terms, conditions or privileges of employment, because of the sexual orientation of any person.

B. No provision of this Chapter shall be construed to make legal any act or omission by any person which is otherwise illegal under any provision of law.

C. It shall not be an unlawful discriminatory practice for a business establishment to observe the terms of a bona fide employment benefit system. (Ord. C-6408 § 1 (part), 1987)

5.09.030 Bona fide business requirements.

A. No provision of this Chapter shall be construed to prohibit any act or omission by any business establishment based on bona fide business requirements of that business establishment.

B. No provision of this Chapter shall be construed to prohibit any act or omission by any business establishment permitted by State or Federal law with respect to disability, handicap or medical condition, or to permit any act or omission by any business establishment prohibited by State or Federal law with respect to disability, handicap or medical condition. (Ord. C-6408 § 1 (part), 1987)

5.09.040 Enforcement.

A. Any person aggrieved by violation of any provision of this Chapter, may enforce said provision or provisions by a civil action; provided that such action shall be brought in the person's individual capacity.

B. Any person who violates any provision of this Chapter or who knowingly aids another in the violation of a provision of this Chapter, shall be liable to the person aggrieved for the following:

1. The actual damages suffered and incurred by the person aggrieved;

2. A civil penalty payable to the person aggrieved in the sum of two hundred dollars ($200.00) in addition to the actual damages of the person aggrieved; provided that the civil penalty shall be imposed regardless of whether the person aggrieved proves actual damages;

3. The costs of the person aggrieved in connection with the civil action;

4. The Attorney's fees of the person aggrieved in connection with the civil action.

C. Any person who commits or proposes to commit an act in violation of this Chapter may be enjoined therefrom by a court of competent jurisdiction. Action for an injunction under the ordinance codified in this Chapter may be brought by any aggrieved person.

D. No criminal penalties shall attach for any violation of the provisions of this Chapter.

E. Any civil action pursuant to the provisions of this Chapter shall be filed within one (1) year of the accrual of the cause of action.

F. Any person who files or maintains a frivolous action under this Chapter shall be liable to the business establishment for expenses, including Attorney fees, incurred in defense of the action. "Frivolous" as used herein means totally and completely without merit or for the sole purpose of

harassing an opposing party. The liability imposed by this Subsection is in addition to any other liability imposed by law. (Ord. C-6408 § 1 (part), 1987)

5.09.050 Severability.

All provisions of this Chapter are severable. If any part or provision of this Chapter is held in-

valid for any reason by the final order of a court of competent jurisdiction, the remainder of the Chapter shall not be affected and shall remain in full force and effect. (Ord. C-6408 § 1 (part), 1987)

CHAPTER 5.12 ALARM SYSTEMS

5.12.010 Purpose.

The purpose of this Chapter is to set forth regulations governing burglary and robbery alarm systems, and users of such systems within the City, to provide for alarm system permits and to set forth the permit fees therefor. (Ord. C-6260 § 1 (part), 1986)

5.12.020 Definitions.

For the purpose of this Chapter, certain words and phrases shall be construed in this Chapter as set forth in this Section, unless it is apparent from the context that a different meaning is intended:

A. "Alarm agent" means any person who is employed by an alarm business operator, either directly or indirectly, who does not respond to activated alarms but whose duties include any of the following: Selling, maintaining, leasing, servicing, repairing, altering, installing, replacing, or moving on or in any building, structure or facility, any alarm system.

B. "Alarm business" means the business of any person consisting of selling and installing, maintaining, servicing, altering, replacing or moving any alarm system or component parts thereof in or on any building, structure or facility, or responding to alarm systems.

C. "Alarm business operator" means any person who operates any business engaged in the sale and installation, maintenance, alteration, or servicing of the alarm systems, or which responds to such alarm systems. Alarm business operator shall not include a business which merely sells from a fixed location or manufactures alarm systems, unless such business services, installs, monitors, or responds to alarm systems at protected premises.

D. "Alarm system" means any system or device designed or used for the detection of an unauthorized entry into any building, structure, or facility, or for alerting others of the commission of an unlawful act within any building, structure, or facility, or communicating the fact of such unlawful entry or the commission of such unlawful act.

E. "Chief of Police" means the Chief of Police of the City or his designated representative.

F. "False alarm" means an alarm signal to which the Long Beach Police Department has responded and where an emergency situation did not exist. Such emergency situations shall include only those acts for which the permittee's alarm system was specifically designed to detect or to alert the Police Department as specifically set out in Subsection D., above.

G. "Department of Financial Management" means the Department of Financial Management of the City.

H. "Responding alarm agent" means any person who responds to alarms or who is in uniform and on duty for the purpose of responding to an alarm.

I. Repealed.

J. "Commercial alarm system" means any alarm system protecting structures or areas which are not used primarily for habitation.

K. "Residential alarm system" means any alarm system protecting structures or areas which are used primarily for habitation. (Ord. C-6548 § 6, 1988; Ord. C-6260 § 1 (part), 1986)

5.12.030 Permit—Required.

A. Alarm system. No person shall install on, or maintain on, any premises under his control or have installed on, and/or maintained on or operated on, any premises under his control any alarm system without first applying for and obtaining an alarm system permit therefor in accordance with the provisions of this Chapter; provided, however, the premises maintained for the conducting of an alarm business by an alarm business operator shall be exempt from this requirement. There shall be no installation of any alarm system or any service or repair work thereon performed until all permits required under this Chapter have been obtained.

B. Alarm agent and responding alarm agent. No person shall act as alarm agent or responding

alarm agent without having previously registered as an alarm agent or responding alarm agent with the Department of Consumer Affairs of the State. Any person acting as an alarm agent or responding alarm agent must, prior to performing any duties of an alarm agent or responding alarm agent, show his registration card, issued by the Department of Consumer Affairs, to the Chief of Police or his representative. (Ord. C-6260 § 1 (part), 1986)

5.12.040 Exceptions.

The provisions of this Chapter do not apply to:

A. Persons engaged solely in the manufacture or sale of alarm systems, components from a fixed location and who do not install, maintain, service or plan the alarm system for any location;

B. Alarm systems which do not directly alert law enforcement agencies or others outside the protected building, structure or facility, but are designed solely to alert security personnel or others directly connected with or employed by the owner of or operator of the protected building, structure or facility;

C. Any person who engages in the selling or repairing of alarm systems or components thereof from a fixed location, and who does not either personally or through an agent or employee, visit the building, structure or facility in which the alarm system is sold or repaired or installed. (Ord. C-6260 § 1 (part), 1986)

5.12.050 Alarm system permit—Application—Form.

Applications for alarm system permits required under this Chapter shall be filed with the Department of Financial Management in the form prescribed and shall be accompanied by the requisite fee. The fee is established to cover the actual cost of permit issuance and management, including, but not limited to, the cost of investigating and processing the applications for such alarm system permits. It is not refundable. (Ord. C-6260 § 1 (part), 1986)

5.12.060 Alarm system permit—Application—Investigation.

The Chief of Police shall conduct an appropriate investigation of the application for an alarm system permit. The permit shall be denied by the Chief of Police if the alarm system does not comply with the standards and regulations adopted pursuant to Section 5.12.110. Said permit shall be issued to the person possessing a permit to engage in business on the premises, or to the owner of such property, or to the owner or tenant of the property in the event such alarm system is installed on property used for residential purposes. (Ord. C-6260 § 1 (part), 1986)

5.12.070 Confidentiality.

The information furnished and secured pursuant to this Chapter shall be confidential in character and shall not be subject to public inspection and shall be kept so that the contents thereof shall not be known except to persons charged with the administration of this Chapter. (Ord. C-6260 § 1 (part), 1986)

5.12.080 Alarm system permit—Fee.

A. A permit fee provided by resolution of the City Council adopted pursuant to Section 5.04.040, shall be payable upon the making of an application to install an alarm system. The fee shall be paid before any permit to install an alarm system is issued. Upon any change of location of the alarm system, a new fee in the amount of the regular annual fee shall be due and payable. Alarm system permits for businesses shall be renewed annually and alarm system permits for residences shall be renewed every three (3) years. Any federal, State or local agency shall be exempt from the payment of the fee provided for in this Section.

B. It shall be a violation of this Chapter if an owner fails to obtain an alarm permit within fifteen (15) days after receipt of notification of a violation. (Ord. C-6548 § 1, 1988: Ord. C-6325 § 14, 1986: Ord. C-6260 § 1 (part), 1986)

5.12.090 Approving authority.

The approving authority for permits issued pursuant to the provisions of this Chapter shall be

the Chief of Police and the issuing authority for such permits shall be the Director of Financial Management. (Ord. C-6260 § 1 (part), 1986)

5.12.100 Permit—Nontransferable.

Any permit for an alarm system issued under this Chapter shall be nontransferable. (Ord. C-6260 § 1 (part), 1986)

5.12.110 Standards and regulations.

The Chief of Police shall prescribe and enforce minimum standards and regulations for the installation, maintenance and operation of all alarm systems installed, serviced or maintained within the City. The Chief of Police may require inspection and approval of all alarm systems installed, serviced or maintained within the City. (Ord. C-6260 § 1 (part), 1986)

5.12.120 Number of false alarms—Fees—Nonresponse—Exceptions.

A. A service charge, prescribed by resolution of the City Council, shall be charged to the permittee of a particular system for the second and any subsequent false alarms in any twelve (12) month period. The twelve (12) month period is measured from the date of a false alarm to the preceding twelve (12) months.

B. The Chief of Police or his/her designee may conduct investigations and inspections, if necessary, to verify that the cause of the false alarms has been corrected.

C. After each false alarm, the Director of Financial Management or designee shall notify the permittee in writing of the date and time that the Police Department responded to that false alarm and the number of false alarms of record attributed to that alarm system within the previous twelve (12) month period. The permittee shall further be informed in writing of the provisions of this Section and of any service charge to be imposed.

D. Within ten (10) days from the date of said notice, the permittee may present written evidence to the Director of Financial Management or designee that the alarm response in question was not in fact a false alarm as defined in Subsection 5.12.020.F, or that there was a justifiable reason for the activation of the alarm. If no such response is made by the permittee within said ten (10) day period, the Police Chief's order shall be final. Within ten (10) days of receipt of a response from the permittee, if the Chief of Police or his/her designee determines that the response to the alarm in question was not in fact a false alarm, the alarm response shall not be counted against the permittee. The permittee shall be notified in writing of the Police Chief's determination.

E. No false alarms shall be counted against the permittee that were the result of fire, earthquake, flood, acts of God or other natural disasters.

F. Nothing contained herein shall be construed to either require or prohibit a response by the Police Department to any alarm signal or to, in any way, regulate the discretion of the Police Chief in allocating Police resources in the official performance of his/her duties. (ORD-10-0014, § 26, 2010; Ord. C-7423 § 2, 1996: Ord. C-7304 § 1, 1994: Ord. C-6548 §§ 2, 3, 4, 5, 1988; Ord. C-6260 § 1 (part), 1986)

5.12.140 Alarm system permit—Suspension or revocation—Grounds.

The following shall constitute grounds for suspension and revocation of an alarm system permit:

A. Any of the grounds set forth in Section 5.06.010;

B. The violation of any of the provisions of this Chapter or of any alarm system standards and regulations prescribed by the Chief of Police pursuant to this Chapter. (Ord. C-6260 § 1 (part), 1986)

5.12.150 Alarm system permit—Suspension or revocation—Authority.

Any alarm system permit issued under this Chapter may be suspended by the Chief of Police for the grounds listed in Section 5.12.140. (Ord. C-6260 § 1 (part), 1986)

5.12.160 Alarm system permit—Suspension or revocation—Hearing.

A. No permit issued pursuant to the provisions of this Chapter shall be suspended until after a hearing is held by the Chief of Police, relating to such suspension, notice of which hearing shall be given in writing to the permittee and served at least fifteen (15) days prior to the date of the hearing thereon; such service shall be upon the holder of such permit or his/her manager or agent, which notice shall state the ground of suspension and shall also state the time when, and the place where, such hearing will be held. The notice shall be served upon the holder of the permit by delivering the same to the person, his/her manager or agent, or to any person in charge of, or employed in the place of business of the holder, or, if the person has no place of business, then, at his/her place of residence, or by leaving the notice at the place of business or residence of the person with some person of suitable age and discretion. In the event the holder of the permit cannot be found and the service of the notice cannot be made upon him/her in the manner provided, then a copy of the notice shall be mailed, postage fully prepaid, addressed to the permittee at his/her place of business or residence at least fifteen (15) days prior to the date of the hearing.

B. Any permit suspended by order of the Chief of Police shall be deemed permanently revoked fifteen (15) days after the order of suspension becomes effective unless the permittee files an appeal from the order of suspension in the time and in the manner provided in Section 5.12.170.

C. When an appeal is filed, the order of suspension shall be stayed pending the determination of the appeal by the City Council. The suspension shall become a revocation of the permit if the decision of the City Council upholds the order of suspension made by the Chief of Police. The suspension shall be dissolved immediately if the decision of the City Council reverses the order of suspension made by the Chief of Police.

D. Any permit revoked pursuant to the provisions of this Chapter shall be surrendered by the permittee to the Chief of Police or his/her representative who shall transmit it to the business license section of the Department of Financial Management. (Ord. C-7423 § 3, 1996: Ord. C-6260 § 1 (part), 1986)

5.12.170 Alarm system permit—Suspension or revocation—Appeal.

Any applicant for a permit, which may be required under this Chapter, whose application for such permit has been denied by the Chief of Police, or any permittee whose permit has been suspended pursuant to an order of suspension made by the Chief of Police, may, within ten (10) days after such denial or order of suspension, appeal therefrom to the City Council by filing with the Director of Financial Management a notice of such appeal setting forth the decision and the grounds upon which he deems himself aggrieved thereby. The applicant shall pay to the Director of Financial Management at the time of filing the notice of appeal, a sum as determined by the City Council by resolution as a filing fee. The Director of Financial Management shall report the filing of the application to the Chief of Police. The Chief of Police shall thereupon make a written report to the Director of Financial Management setting forth the basis of the determination denying the application for a permit or issuing the order of suspension. The Director of Financial Management shall within ten (10) days forward the written report to the City Council. The City Council at its next regular meeting following the receipt of the written report shall set the appeal for hearing to be held not less than ten (10) days, nor more than thirty (30) days thereafter, and the hearing may be continued for good cause by the order of the City Council. The disposition of the appeal by the City Council shall be final. (ORD-10-0014, § 5, 2010; Ord. C-6260 § 1 (part), 1986)

CHAPTER 5.16 AUTOMOBILE BUSINESSES

ARTICLE I. DEFINITIONS

5.16.010 Definitions.

As used in this Chapter 5.16, the following words and phrases shall have the following meanings:

A. "Auto repair shop" means any shop, building, room, place or space wherein, for compensation, any automobile, other motor vehicle, or any parts thereof, are repaired, remodeled, overhauled, reconditioned, or painted.

B. "Automobile dealer" means and includes any person engaged in, conducting, managing or carrying on the business of buying, selling, offering to buy or offering to sell, consigned to be sold or otherwise dealing in new or used motor vehicles, or both, as the term "motor vehicle" is defined in the State Vehicle Code.

C. "Automobile wrecking" means the principal use of any premises for the dismantling, demolition or crushing of any automotive vehicle, or for the storage of abandoned or irreparably damaged vehicles.

D. "Public garage" means and includes a room, building or other structure where automobiles are kept or stored by the public, and where a charge is made for such storage or keeping of automobiles.

E. "Valet parking" means the service of parking cars for remuneration.

F. "Car rental agency" means any business involving the rental, leasing, or repossession or transportation of new or used vehicles for rental or leasing. (ORD-07-0045 § 1, 2007; Ord. C-6260 § 1 (part), 1986)

ARTICLE II. AUTOMOBILE DEALERS—NEW AND USED

5.16.015 Parking on street prohibited.

No person engaged in conducting or carrying on the business of automobile dealer, as defined in Section 5.16.010, shall store, display or park for such purposes any motor vehicle in his possession or under his control upon any public street or highway. This Section shall not apply to any motor vehicle registered in the name of such person or to any motor vehicle for which an application and fee for registration in the name of such person has been filed with the Department of Motor Vehicles as long as the automobile is not for sale by the owner of the business. (Ord. C-6260 § 1 (part), 1986)

ARTICLE III. AUTO REPAIR SHOPS

5.16.020 Use of public street prohibited.

A. No person engaged in conducting or carrying on the business of an auto repair shop as defined in this Code, shall repair, remodel, overhaul, recondition or paint any automobile, other motor vehicle, or any parts thereof, in his/her possession or under his/her control, upon any public street or highway.

B. No person engaged in conducting or carrying on the business of an auto repair shop as defined in this Code shall store, display or park upon any street or highway any motor vehicle in his/her possession or under his/her control which is inoperable, which has any parts removed therefrom or which is in any way in the process of being painted.

C. No person engaged in conducting or carrying on the business of an auto repair shop as defined in this Code shall store, display or park upon a public street or highway any motor vehicle in his/her possession or under his/her control between the hours of six o'clock (6:00) p.m. and seven o'clock (7:00) a.m., including Saturdays, Sundays and holidays.

Subsection 5.16.020.C shall not apply to the parking of any motor vehicle registered in the name of such person or to any motor vehicle for which an application and fee for registration in the name of such person has been filed with the Department of Motor Vehicles.

D. The business of auto repair shall only be conducted at a location approved by the Planning and Building Department and shall not be operated as a mobile business that goes house to house or building to building. (Ord. C-7423 § 4, 1996: Ord. C-6260 § 1 (part), 1986)

ARTICLE IV. PUBLIC GARAGES AND VALET PARKING

5.16.030 Parking on street prohibited.

No person engaged in conducting or carrying on the business of a public garage or valet parking shall store, display or park for such purposes any motor vehicle in his possession or under his control upon any public street or highway. This Section shall not apply to the parking of any motor vehicle registered in the name of such person or to any motor vehicle for which an application and fee for registration in the name of such person has been filed with the Department of Motor Vehicles. (Ord. C-6260 § 1 (part), 1986)

ARTICLE V. AUTO WRECKERS

5.16.040 Use of streets prohibited.

A. No person engaged in conducting or carrying on the business of an auto wrecking shop as defined in this Code, shall dismantle, wreck or otherwise tear down any automobile, truck, or parts thereof, in his possession or under his control, upon any public street or highway.

B. No person engaged in conducting or carrying on the business of an auto wrecking shop as defined in this Code, shall store, display or park for any such purposes any motor vehicle in his possession or under his control upon any public street or highway.

C. Subsection 5.16.040.B shall not apply to the parking of any motor vehicle registered in the name of such person or to any motor vehicle for which an application and fee for registration in the name of such person has been filed with the Department of Motor Vehicles. (Ord. C-6260 § 1 (part), 1986)

Article VI. Car Rental Agencies

5.16.050 Use of streets prohibited.

No person engaged in conducting or carrying on the business of car rental agency, as that term is defined in Section 5.16.010, shall store, display or park for such purposes any motor vehicle in his or her possession or under his or her control upon any public street or highway. This Section shall not apply to any motor vehicle registered in the name of such person or to any motor vehicle for which an application and fee for registration in the name of such person has been filed with the California Department of Motor Vehicles, as long as the vehicle is not be rented or leased by the owner of the business. This Section shall not apply to any motor vehicle rented or leased by an individual from a rental car agency. (ORD-07-0045 § 2, 2007)

CHAPTER 5.20 BINGO

5.20.010 Defined.

As used in this Chapter, "bingo" means a game of chance in which prizes are awarded on the basis of designated numbers or symbols on a card which conform to numbers or symbols selected at random. The game of "bingo" shall also include "break-open" or "pull-tab" type cards having numbers or symbols that are concealed and preprinted in a manner providing for distribution of prizes. (Ord. C-7423 § 16, 1996: Ord. C-7217 § 1, 1994: Ord. C-6260 § 1 (part), 1986)

5.20.020 Permit—Required.

The game of bingo shall not be allowed, played, or conducted except pursuant to a permit obtained from the Chief of Police in the manner as provided in this Chapter. The permit shall be posted in a conspicuous place on the premises where bingo games are conducted so as to be easily seen. No more than three (3) separate eligible organizations, as that term is defined in Section 5.20.030 of this Chapter, may apply for and be issued a permit to operate from the same location provided that each organization conduct its bingo game on different days of the week. (Ord. C-7423 § 16, 1996: Ord. C-7231 § 1, 1994: Ord. C-6260 § 1 (part), 1986)

5.20.030 Permit—Organizations eligible.

Organizations exempted from the payment of the bank and corporation tax, by Sections 23701a, 23701b, 23701d, 23701e, 23701f, 23701g, and 23701l of the Revenue and Taxation Code of the State

and mobile home park associations and senior citizen associations, provided that the proceeds of such games are used only for charitable purposes, are eligible to apply to the City for a permit to conduct bingo games in the City under the provisions of Section 326.5 of the Penal Code and the provisions of this Chapter; provided, however, that such organizations and associations shall have been organized, established and operating in the City for a minimum of one (1) year continuously preceding the filing of an application for a bingo permit. (Ord. C-7423 § 16, 1996: Ord. C-6260 § 1 (part), 1986)

5.20.040 Permit—Application—Fee.

Eligible organizations desiring to obtain a permit to conduct bingo games in the City shall file an application in writing therefor in the office of the Director of Financial Management. The application shall be accompanied by a fee determined by the City Council by resolution, one-half (1/2) of which is refundable if the application is denied. The issuing authority shall be the Chief of Police. The permit issued shall be for a term of one (1) year from the date of issuance, subject to renewal and an annual fee determined by the City Council by resolution. (ORD-10-0014, § 6, 2010; Ord. C-7423 § 16, 1996: Ord. C-6260 § 1 (part), 1986)

5.20.050 Permit—Applicant qualification.

No permit shall be issued to any organization unless the applicant is an eligible organization under Section 5.20.030 and its application conforms to the requirements, terms and conditions of this Chapter. (Ord. C-7423 § 16, 1996: Ord. C-6260 § 1 (part), 1986)

5.20.060 Permit—Application—Contents.

The application for a permit shall contain the following:

A. The name of the applicant organization and a statement that applicant is an eligible organization under Section 5.20.030;

B. The name and address of all officers and directors of the organization;

C. The particular property within the City, including the street number: (1) owned or leased by the applicant; or (2) owned or completely controlled by a public school district and whose use has been leased or donated to the applicant by formal specific action of the board of said public school district, on which property bingo games will be conducted, together with the occupancy capacity of such place. In the case of property whose use has been leased or donated by the formal specific action of a public school district board, the applicant shall submit with its application a certified copy of the resolution or minute order of said school board which specifically authorizes and approves the lease or donation of the use of the particular property to the applicant, and shall set forth any and all conditions and requirements imposed by the school board, not inconsistent with the provisions of this Chapter, for the use of said property by the applicant relating to the conduct of bingo games;

D. A description of the security procedures, methods and measures that the applicant will follow and utilize in connection with the conduct of bingo games;

E. The proposed day of the week and hours of the day during which bingo games are proposed to be conducted;

F. That the applicant agrees to conduct bingo games in strict accordance with the provisions of Section 326.5 of the Penal Code and this Chapter, as they may be amended from time to time, and agrees that the permit to conduct bingo games may be revoked by the Chief of Police upon violation of any of such provisions;

G. The application shall be signed under penalty of perjury by at least two (2) officers of the applicant, including the presiding officer;

H. An applicant exempted from the payment of the bank and corporation tax by Sections 23701a, 23701b, 23701d, 23701e, 23701f, 23701g and 23701l of the Revenue and Taxation Code shall submit, with its application, a certificate or determination of exemption under said sections of the Revenue and Taxation Code and a letter of good standing from the Exemption Division of

the Franchise Tax Board in Sacramento, showing exemption under one (1) or more of said sections;

I. The application shall contain a statement of any convictions for any offenses by the applicant or any of the applicant's proposed officers, directors or employees;

J. The applicant shall furnish the location of all bingo games conducted by the applicant, including those outside the City, as well as a list of suppliers of bingo related materials used by the applicant. (Ord. C-7423 § 16, 1996: Ord. C-6757 § 1, 1990: Ord. C-6260 § 1 (part), 1986)

5.20.070 Permit—Application—Investigation.

A. Upon receipt of the completed application and the application fee, the Director of Financial Management shall refer the same to interested departments of the City, including, but not limited to, the Chief of Police, Building and Planning Department, and the Fire Department for investigation as to whether or not all the statements in the application are true and whether or not the property of the applicant qualifies and the extent to which it qualifies as property on which bingo games may lawfully be conducted, as to fire, occupancy, and other applicable restrictions. Each department to which a completed application is referred shall complete its investigation and file a report with the Director of Financial Management within one (1) year of the date of the application. Any department to which an application is referred that does not file its report with the Director of Financial Management as provided herein, shall be deemed to have recommended approval of the application. Upon either the receipt of completed reports from all of the departments to which an application has been referred or the expiration of one (1) year from the date of the application, whichever event occurs first, the Director of Financial Management shall forward the application together with all completed reports to the Chief of Police.

B. No permit shall be issued if any officer or director of the applicant has been convicted of a crime involving moral turpitude. (Ord. C-7423 § 16, 1996: Ord. C-6260 § 1 (part), 1986)

5.20.080 Permit—Contents.

Upon being satisfied that the applicant is fully qualified under the law to conduct bingo games in the City, the Chief of Police shall issue a permit to the applicant which shall contain the following information:

A. The name and nature of the organization to whom the permit is issued;

B. The address and description of the property where bingo games are authorized to be conducted;

C. The occupancy capacity of the room in which bingo games may be conducted;

D. The day of the week and the hours of the day during which bingo games may be conducted pursuant to the permit;

E. The security procedures, methods and measures that will be followed and utilized by the permittee in connection with the conduct of its bingo games;

F. The date of the expiration of the permit;

G. Such other information as may be necessary or desirable for the enforcement of the provisions of this Chapter. (Ord. C-7423 § 16, 1996: Ord. C-6757 § 2, 1990: Ord. C-6260 § 1 (part), 1986)

5.20.085 Renewal of permits.

A. Any person permitted under this Chapter shall have thirty (30) days from the date of expiration to renew their permit.

B. On a biennial basis, permit renewal will be contingent upon each executive officer and the executive director of the organization submitting to a background examination subsequent to fingerprint examination. If, upon the thirty-first day after permit expiration the renewal process has not been completed, the permit shall be deemed suspended until such time as each specified member of the permittee organization has complied with the renewal requirements. (Ord. C-7423 § 16, 1996)

5.20.090 Permit—Revocation—Hearing.

A. Whenever it appears to the Chief of Police that the permittee is conducting a bingo game in violation of any of the provisions of this Chapter, the Chief of Police shall have the authority to summarily suspend the permit and order the permittee to immediately cease and desist any further operation of any bingo game.

B. Any person who continues to conduct a bingo game after any summary suspension thereof under Subsection 5.20.090.A, shall be guilty of a misdemeanor and upon conviction thereof shall be punishable by a fine not exceeding five hundred dollars ($500.00) or by imprisonment for a period not exceeding six (6) months, or by both such fine and imprisonment.

C. The order issued under Subsection 5.20.090.A, shall also notify the permittee that it shall have five (5) days from the date of such order to request a hearing to determine whether such permit shall be revoked. Failure to request, in writing, the hearing before the Chief of Police within the five (5) day period shall result in a revocation of the permit.

D. If the permittee whose permit has been suspended under Subsection 5.20.090.A, requests a hearing to determine whether the permit shall be revoked, the Chief of Police shall provide such hearing within ten (10) days after receipt of such request at which hearing the suspended permittee may appear before the Chief of Police or his/her designee for the purpose of presenting evidence why the permit should not be revoked. No permit shall be revoked under this Section unless notice of the time and place of the hearing has first been given at least five (5) days before the hearing thereof by depositing in the United States mail, a notice directed to the suspended permittee at the address given in the application. The notice shall set forth a summary of the grounds for suspension and revocation.

E. Any organization whose permit is revoked under this Section shall not conduct any bingo game in the City until such time as the City Council, on appeal, determines to overrule the decision of the Chief of Police. (Ord. C-7423 § 16, 1996: Ord. C-6260 § 1 (part), 1986)

5.20.100 Permit—Revocation—Alternative procedure.

A. Whenever it appears to the Chief of Police that the permittee is conducting bingo games in violation of any of the provisions of this Chapter, or that the permit was obtained by fraudulent representation and no summary suspension is ordered under Section 5.20.090, the permit may be revoked; provided, however, the permittee may appear before the Chief of Police at the time fixed by the Chief of Police for the purpose of presenting evidence why the permit should not be revoked. No permit shall be revoked under this Section unless written notice has first been given at least five (5) days before the hearing thereof by depositing in the United States mail, a notice directed to the permittee at the address given in the application. The notice shall set forth a summary of the grounds for revocation.

B. Any organization whose permit is revoked under this Section shall not conduct any bingo game in the City until such time as the City Council, on appeal, determines to overrule the decision of the Chief of Police. (Ord. C-7423 § 16, 1996: Ord. C-6260 § 1 (part), 1986)

5.20.110 Permit—Revocation—Appeal.

A. Any holder of a permit whose permit is revoked under this Chapter shall have the right, within ten (10) days after the date of mailing of the written notice of revocation, to file a written appeal to the City Council. Such appeal shall set forth the specific ground or grounds on which it is based. The City Council shall hold a hearing on the appeal within thirty (30) days after its receipt by the City, or at a time thereafter agreed upon, and shall cause the appellant to be given at least ten (10) days' written notice of such hearing. At the hearing, the appellant or its authorized representative shall have the right to present evidence and a written or oral argument, or both, in support of his/her appeal. The determination of the City Council on the appeal shall be final.

B. Any organization whose permit is finally revoked may not again apply for a permit to conduct games in the City for a period of one (1) year from the date of such revocation; provided, however, if the ground for revocation is cancellation of the exemption granted under Section 23701 of the Revenue and Taxation Code or Section 501 of the Internal Revenue Code, the organization may again apply for a permit upon proof of reinstatement of the exemption. (Ord. C-7423 § 16, 1996: Ord. C-6260 § 1 (part), 1986)

5.20.120 Maximum amount of prizes.

The total value of prizes awarded during the conduct of any bingo game shall not exceed five hundred dollars ($500.00) in cash or kind, or both, for each separate game which is held, nor shall the awarding of tickets, bonuses, premiums or any other thing of value, however characterized, be permitted that will or may increase the value of the prize over five hundred dollars ($500.00). (ORD-10-0003, § 1, 2010; Ord. C-7423 § 16, 1996: Ord. C-6260 § 1 (part), 1986)

5.20.130 Profits to be kept in separate fund or account.

With respect to organizations exempt from payment of the bank and corporation tax by Section 23701d of the Revenue and Taxation Code, all profits derived from a bingo game shall be kept in a special fund or account and shall not be commingled with any other fund or account. Such profits shall be used only for charitable purposes. With respect to other organizations authorized to conduct bingo games pursuant to this Chapter, all proceeds derived from a bingo game shall be kept in a special fund or account and shall not be commingled with any other fund or account. Such proceeds shall be used only for charitable purposes, except as follows:

A. Such proceeds may be used for prizes;

B. A portion of such proceeds, not to exceed twenty percent (20%) of the proceeds before the deduction for prizes or two thousand dollars ($2,000.00) per month, whichever is less, may be used for rental of property, overhead, including the purchase of bingo equipment, administrative expenses, security equipment and security personnel;

C. All permittees shall report on forms prescribed by the Director of Financial Management an accounting of all receipts and expenditures for each calendar month. Accounting of all receipts and expenditures for "break-open" or "pull-tab" bingo games shall be maintained separate and apart from the accounting for all other bingo games. At a minimum such accounting shall include the serial number of each "break-open" or "pull-tab" type game purchased by the permittee organization, the name of the game purchased, the number and denomination of cash prizes available for a particular game, the date that the particular game is first put in play and the date the game is discontinued, the total tickets available for purchase in the game, the total number of tickets sold in any particular game, the cost per play of the game, the total number of tickets remaining when a particular game is discontinued, the total amount of cash received as a result of a particular game, the amount of cash prizes paid out for a particular game and the net profit to the organization as a result of the tickets sold for a particular game. Any permittee operating or conducting bingo games in the City shall pay a fee of one percent (1%) of the monthly gross receipts in excess of five thousand dollars ($5,000.00) derived from bingo games which sum shall be reported and paid to the Director of Financial Management. Permittees with gross receipts of five thousand dollars ($5,000.00) or more for any calendar month shall file the report for that month on or before the fifteenth day of the following month, and shall pay any sums due pursuant to Section 5.20.040. Permittees with gross receipts of less than five thousand dollars ($5,000.00) for any calendar month shall file said report on or before the fifteenth day of the month following the close of each calendar quarter. If payment is not made within the time specified in this Section, the permittee shall pay a penalty of twenty-five percent (25%) of the amount due in addition to the amount due. If the amount due plus penalty remains unpaid on the first day of the

following month, such noncompliance shall constitute grounds for revocation of the permit. All required reports shall clearly distinguish between receipts and expenditures generated by "break-open" or "pull-tab" type games and receipts and expenditures generated by all other bingo games. Said reports shall bear the signatures of two (2) officers of the permittee organization signifying, under penalty of perjury, to the accuracy and veracity of the reported information;

D. On or before January 31st of each year the permittee shall report on forms prescribed by the Director of Financial Management an accounting of all receipts and expenditures for the prior calendar year; said report shall be certified by two (2) officers of the permittee organization signifying, under penalty of perjury, to the accuracy and veracity of the report information;

E. Bingo financial records of the permittee shall at all times be available to the Chief of Police and the City Auditor or their authorized designees;

F. In addition, each permittee with gross receipts that average five thousand dollars ($5,000.00) or more per month for a calendar year shall within ninety (90) days after the close of the calendar year file with the Chief of Police and Director of Financial Management an independent audit report covering permittees operations for the calendar year prepared by either a certified public accountant or a public accountant. Each permittee with gross receipts that average less than five thousand dollars ($5,000.00) per month for a calendar year shall within ninety (90) days after the close of the calendar year file a letter prepared by a certified public accountant or a public accountant stating that a review of the permittee's internal operations and controls for the calendar year has been made and that no unsatisfactory conditions were found. Each permittee shall cause the reports and letters required in this Section to be prepared at his/her sole cost and expense. (Ord. C-7423 § 16, 1996: Ord. C-7217 § 2, 1994; Ord. C-6260 § 1 (part), 1986)

5.20.140 Financial interest in permittee only.

No individual, corporation, partnership, or other legal entity except the permittee shall hold a financial interest in the conduct of the bingo game. (Ord. C-7423 § 16, 1996: Ord. C-6260 § 1 (part), 1986)

5.20.150 Exclusive operation by permittee.

A. A bingo game shall be operated and staffed only by members of the permittee organization. Such members shall not receive a profit, wage, salary or other economic gain from any bingo game. Only the permittee shall operate such game, or participate in the promotion, supervision, or any other phase of such game.

B. A member of the authorized organization whose name appears on the application for a permit shall be designated as the bingo manager. The bingo manager shall be responsible for the conduct and operation of the bingo games and for compliance with all applicable laws, rules and regulations promulgated thereunder.

C. All staff members of a bingo game shall wear on their outside clothing an identification insignia or badge, no less than two and one-half (2½) by three and one-half inches (3½") in dimension, or in the alternative, eight and three-quarters (8¾) square inches in overall dimension indicating the name of the organization and the name and title of the staff member.

D. All bingo equipment shall be maintained in proper working order to assure that all players have an equal opportunity to win each game. Prior to the commencement of each game, the prize shall be clearly announced. A facsimile of each game to be played shall be displayed and available to all players. (Ord. C-7423 § 16, 1996: Ord. C-6260 § 1 (part), 1986)

5.20.155 "Break-open" or "pull-tab" bingo.

A. In "break-open" or "pull-tab" type bingo the winning cards shall not be known prior to the game by any person participating in the playing or operation of the bingo game. "Break-open" or "pull-tab" cards must be completely made of paper or paper products which conceal numbers or symbols that must be exposed by the player in order to determine wins or losses. Each card shall be designed, constructed, glued and assembled in

such a manner as to prevent determination of a winning or losing ticket without removing the tabs or otherwise uncovering the numbers or symbols as intended.

B. During the conduct of any authorized bingo game no member of the organization's staff or any organization volunteer or any bingo supplier or employee or agent of any bingo supplier shall purchase or otherwise be supplied with any "break-open" or "pull-tab" cards for the purpose of playing bingo.

C. All winning "break-open" or "pull-tab" type tickets equal to or in excess of fifty dollars ($50.00) shall be signed on the reverse side by the winner and shall bear the winner's Social Security Number, home address and telephone number. Such winning tickets shall be maintained by the permittee organization for a period of one (1) year and shall at all times be available to the Chief of Police and the City Auditor or their authorized designees.

D. "Break-open" or "pull-tab" type cards shall only be sold or distributed during the permittee organization's normal hours of bingo operation and only at the site or property designated in the organization's permit.

E. "Break-open" or "pull-tab" type games shall be received by the permittee organization from a bingo supplier permitted to do business in the City in boxes or containers that are factory sealed by the manufacturer. Each "break-open" or "pull-tab" type card must contain, at a minimum, the following information: 1) the name of the manufacturer or its distinctive logo; 2) name of the game to be played; 3) manufacturer's serial number; and 4) price per individual card. No box or container shall be opened by the permittee organization unless during the regular hours of bingo operation and in the presence of at least two (2) bingo patrons not in any way affiliated with the permittee organization.

F. The Chief of Police shall at all times retain the right to prohibit a particular "break-open" or "pull-tab" type game if the Chief of Police determines that such game is conducive to fraud or other malfeasance.

G. All preprinted cards shall bear the legend "for sale or use only in a bingo game authorized under California law and pursuant to local ordinance". (Ord. C-7423 § 16, 1996)

5.20.165 Bingo games open to public.

All bingo games shall be open to the public, not just to the members of the permittee organization. (Ord. C-7423 § 16, 1996: Ord. C-6260 § 1 (part), 1986)

5.20.170 Attendance limited to occupancy capacity.

Notwithstanding that bingo games are open to the public, attendance at any bingo game shall not exceed three hundred fifty (350) participants and in no case shall exceed the occupant load of the room in which such game is conducted as determined by the Fire Department and Building Department of the City in accordance with applicable laws and regulations. Permittee shall not reserve seats or space for any person. (Ord. C-7423 § 16, 1996: Ord. C-6260 § 1 (part), 1986)

5.20.180 Bingo games conducted only on permittee's property.

A permittee shall conduct a bingo game only: (1) on property owned or leased by it and which property is used by such organization for an office or for performance of the purposes for which the organization is organized; or (2) on property which is owned or completely controlled by a public school district, and which has been leased or donated for use by the permittee on either an exclusive or a nonexclusive basis for the performance of the purpose for which the organization is organized, by specific formal action of the school board of said public school district which expressly authorizes and approves the use of the particular property for the conduct of bingo games. The permit issued under this Chapter shall authorize the holder thereof to conduct bingo games only on such property, the address and description of which is stated in the application. In the event the described property ceases to be used as an office or as a place for performance of the purposes for

which the permittee is organized, the permit shall have no further force or effect. A new permit may be obtained by an eligible organization, upon application under this Chapter, when the organization again owns or leases property or has school district property donated for its use and which property is used by it for an office or for performance of the purposes for which the organization is organized. (Ord. C-7423 § 16, 1996: Ord. C-7231 § 2, 1994: Ord. C-6757 § 3, 1990: Ord. C-6260 § 1 (part), 1986)

5.20.190 Minors not to participate.

No person under the age of eighteen (18) years of age shall be allowed to participate in any bingo game. (Ord. C-7423 § 16, 1996: Ord. C-6260 § 1 (part), 1986)

5.20.200 Intoxicated persons not to participate.

No person who is obviously intoxicated shall be allowed to participate in a bingo game. No person as a manager, employee or otherwise representing any organization having a permit and conducting bingo shall sell, distribute or allow alcoholic beverages in any room or rooms where bingo is being conducted during such times as bingo is in progress. (Ord. C-7423 § 16, 1996: Ord. C-6260 § 1 (part), 1986)

5.20.210 Hours of operation.

Each permit granted pursuant to this Chapter shall be valid for only one (1) day during each week, and bingo games shall not be conducted for more than six (6) hours which shall run consecutively within the twenty-four (24) hour period of said day. No bingo game shall be conducted before ten o'clock (10:00) a.m., nor after twelve (12:00) midnight any day. (Ord. C-7423 § 16, 1996: Ord. C-6260 § 1 (part), 1986)

5.20.220 Participant must be present.

No person shall be allowed to participate in a bingo game unless the person is physically present at the time and place in which the bingo game is being conducted. (Ord. C-7423 § 16, 1996: Ord. C-6260 § 1 (part), 1986)

5.20.230 Receipt of profit by any individual prohibited.

It is a misdemeanor under Section 326.5(b) of the Penal Code for any person to receive a profit, wage, salary or other economic gain from any bingo game authorized under this Chapter, a violation of which is punishable by a fine not to exceed ten thousand dollars ($10,000.00), which fine shall be deposited in the general purpose fund of the City. (Ord. C-7423 § 16, 1996: Ord. C-6260 § 1 (part), 1986)

5.20.240 City may enjoin violation.

The City may bring an action in a court of competent jurisdiction to enjoin a violation of Section 326.5 of the Penal Code and of this Chapter. (Ord. C-7423 § 16, 1996: Ord. C-6260 § 1 (part), 1986)

CHAPTER 5.24 BOXING AND WRESTLING EXHIBITIONS*

5.24.010 Definitions.

For purposes of this Chapter, the following definitions shall apply:

A. "Amateur boxing contest" or "amateur boxing exhibition" is defined as a boxing contest in which no contestant has received or shall receive in any form, directly or indirectly, any money, prize, reward or compensation either for the expenses of training for such contest or for taking part therein, and in addition thereto such contest shall be subject to all of the rules and regulations pertaining to amateur boxing of the State Athletic Commission.

B. "Amateur wrestling contest" or "amateur wrestling exhibition" is defined as one in which no contestant has received or shall receive in any form, directly or indirectly, any money, prize, reward or compensation, either for the expenses of

***State law reference**—Provisions on boxing and wrestling, Bus. and Prof. C. § 18600 et seq.

training for such contest or for taking part therein, and all other wrestling contests shall and are defined as professional.

C. "Kickboxing" shall have the same meaning as set forth in California Business and Professions Code.

D. "Martial Arts" shall have the same meaning as set forth in California Business and Professions Code. (ORD-23-0017 § 1, 2023; Ord. C-6260 § 1 (part), 1986)

5.24.020 Boxing permit—Required.

Except as otherwise provided in this Chapter, no person shall operate any professional or amateur boxing contest or exhibition in the City without first having made an application to and received a permit from the Council so to do, and paid the permit fee as provided in this Chapter. (ORD-23-0017 § 2, 2023; Ord. C-6260 § 1 (part), 1986)

5.24.030 Boxing permit—Application.

Every person desiring to operate any professional or amateur boxing contests or exhibitions, as manager, owner, proprietor or lessee thereof, in the City, shall make a written application to the City Department of Financial Management for a permit so to do upon forms to be provided by said official for such purposes; said application shall be signed and sworn to by the applicant, setting forth the exact location at which, and the manner in which the contests or exhibitions are to be conducted, the names, businesses and addresses of all persons connected directly or indirectly with the management conducting and carrying on of the contests or exhibitions. The application shall also state whether the contests or exhibitions are to be professional in character or amateur, and the amount of admission to be charged, if any. (Ord. C-6260 § 1 (part), 1986)

5.24.040 Boxing permit—Issuance.

All such applications shall be presented to the Council, and if, upon investigation, the Council finds in its opinion that the conduct of the business will comport with the public health, safety, morals and welfare, they may authorize the Director of Financial Management to issue the permit as applied for in the application. (Ord. C-6260 § 1 (part), 1986)

5.24.050 Boxing permit—Fee.

In the event boxing contests or exhibitions are designated in the application as professional, such applicant shall pay to the Department of Financial Management a permit fee in an amount to be established by resolution of the City Council and shall file with the City Department of Financial Management the original or certified copy of the permit or license required and issued by the State Athletic Commission. (Ord. C-6260 § 1 (part), 1986)

5.24.060 Boxing permit—Nontransferable.

Permits issued under the terms of this Chapter shall be nontransferable, and in the event of the change of personnel in the management and control of the business, the applicant shall file with the Department of Financial Management a notice specifying the change, giving names and addresses of those persons so designated. (Ord. C-6260 § 1 (part), 1986)

5.24.070 Boxing permit—Revocation.

If at any time subsequent to the issuance of said permit it appears to the Council that the applicant has violated any of the terms of the application and permit issued thereunder, or any of the provisions of this Chapter or any amendments thereto, or has in any manner conducted the boxing or boxing exhibitions in an illegal or disorderly manner or has permitted any ordinance of the City or any law of the State to be violated, the permit for the operation of the boxing or boxing exhibition shall be revoked by the Council. (Ord. C-6260 § 1 (part), 1986)

5.24.080 Wrestling permit—Required.

Except as otherwise provided in this Chapter, no person shall operate any professional or amateur wrestling contest or exhibition in the City without first having made an application to and

received a permit from the Council so to do, and paid the permit fee as provided in this Chapter. (ORD-23-0017 § 3, 2023; Ord. C-6260 § 1 (part), 1986)

5.24.090 Wrestling permit—Application.

Every person desiring to operate any professional or amateur wrestling contests or exhibitions, as manager, owner, proprietor or lessee thereof, in the City, shall make a written application to the Department of Financial Management for a permit so to do upon forms to be provided by said official for such purposes; the application shall be signed and sworn to by the applicant, setting forth the exact location at which, and the manner in which the contests or exhibitions are to be conducted, the names, businesses and addresses of all persons connected directly or indirectly with the management conducting and carrying on of the contests or exhibitions. The application shall also state whether the contests or exhibitions are to be professional in character or amateur, and the amount of admission to be charged, if any. (Ord. C-6260 § 1 (part), 1986)

5.24.100 Wrestling permit—Fee.

In the event the wrestling contests or exhibitions are designated in the application as professional, such applicant shall pay to the Department of Financial Management a permit fee determined by City Council by resolution for each permit required and shall file with the Department of Financial Management the original or certified copy of the permit or license required and issued by the State Athletic Commission. (ORD-10-0014, § 7, 2010; Ord. C-6260 § 1 (part), 1986)

5.24.110 Wrestling permit—Issuance.

All such applications shall be made in triplicate, two (2) of which shall be presented to the Council, and if upon investigation the Council finds, in its opinion, that the conduct of the business will comport with the public health, safety, morals and welfare, they may authorize the City Manager to issue the permit as applied for in the application and a permit thereupon shall be issued by the Department of Financial Management to conduct the business for a period of one (1) year from the date of the issuance thereof. (Ord. C-6260 § 1 (part), 1986)

5.24.120 Wrestling permit—Nontransferable.

In the event a permit is issued to the party applying for same to carry on wrestling contests or exhibitions in the City, the permit shall not be transferable, and shall automatically terminate and end, and in the event of the change of personnel in the management and control of the business, the applicant shall file with the Department of Financial Management a notice specifying the change, giving names and addresses of those persons so designated. (Ord. C-6260 § 1 (part), 1986)

5.24.130 Wrestling permit—Revocation.

If at any time subsequent to the issuance of the permit the Director of Financial Management finds, or is of the opinion that, the managing, conducting or carrying on of the business does not comport with the public health, safety, morals or welfare and that the same has been conducted in an illegal or disorderly manner, he shall report such fact to the Council, and the Council shall direct that an order to show cause be issued and directed to the applicant to show cause why the permit for the business should not be revoked; the order to show cause shall be issued by the City Clerk and served upon the person then actively conducting or in active charge of the business and shall therein specify the time and place of the hearing of the order to show cause by the Council, which such hearing shall not be held at a time earlier than ten (10) days following the issuance of the order to show cause, and the hearing thereof and the decision of the Council pursuant to the hearing shall be had and made at a regular meeting not less than ten (10) days subsequent to the time of the issuance of the order to show cause, at which hearing all parties interested may appear and be heard in person, or otherwise, and if at the hearing it appears to the Council that the conducting, managing or carrying on of the business does not comport with the public health, safety, morals

or welfare and has been conducted in an illegal or disorderly manner, the permit for the operation of the business shall be revoked. (Ord. C-6260 § 1 (part), 1986)

5.24.140 Exemption.

The provisions of this Chapter shall not apply to:

A. Any person operating an event otherwise subject to its provisions with whom the City has executed an agreement for the operation and management of the Long Beach Convention and Entertainment Center; and

B. Any professional or amateur boxing, kickboxing, martial arts, mixed martial arts or similar contest or exhibition licensed by the State Athletic Commission. Such contests and exhibitions shall be required to obtain a Special Events Permit pursuant to the requirements in Chapter 5.60 of this Code. (ORD-23-0017 § 4, 2023; Ord. C-6260 § 1 (part), 1986)

5.24.150 Mock boxing and mock wrestling—Definitions.

A. "Mock boxing" is boxing entertainment where boxing exhibitions or contests are conducted using oversized and heavily padded boxing gloves or other similar implements in which the permittee's employees or customers, or both, may participate.

B. "Mock wrestling" is wrestling entertainment where wrestling contests or exhibitions are conducted in mud or other substances or materials or where the wrestlers or the wrestling area surfaces are coated with oil, whipped cream, shaving cream or other similar substances and where the permittee's employees or customers, or both, may participate. (Ord. C-6622 § 1 (part), 1989)

5.24.160 Mock boxing and mock wrestling—Permit required.

No person shall permit or conduct mock boxing or mock wrestling in the City without a permit from the City Council, which shall be separate from and in addition to any other permit, including any type of entertainment, amusement or athletic activity permit, issued by the City. (Ord. C-6622 § 1 (part), 1989)

5.24.170 Mock boxing and mock wrestling permit—Application.

Every person desiring to conduct any mock boxing or mock wrestling exhibitions or contests, as manager, operator, owner, proprietor or lessee, shall make a written application to the City Department of Financial Management for a permit to do so upon forms provided by the City; the application shall be signed and sworn to by the applicant, setting forth the exact location, and describing in detail the method and manner in which the mock boxing or wrestling exhibitions or contests are to be conducted, the names, businesses and addresses of all persons connected directly or indirectly with the management proposing to conduct the exhibitions or contests. (Ord. C-6622 § 1 (part), 1989)

5.24.180 Mock boxing and mock wrestling permit—Issuance.

All applications for mock boxing or mock wrestling permits shall be presented to City Council, and if, upon investigation, the City Council finds that the conduct of the business will comport with the public health, safety, morals and welfare, it may authorize the Director of Financial Management to issue the permit as applied for in the application and may prescribe such conditions to be included as part of the permit as may be determined to be necessary and appropriate. (Ord. C-6622 § 1 (part), 1989)

5.24.190 Mock boxing and mock wrestling—Fee.

The permit fee for mock boxing or mock wrestling separately or for both activities together shall be established by resolution of the City Council. (Ord. C-6622 § 1 (part), 1989)

5.24.200 Mock boxing and mock wrestling permit—Nontransferable.

Permits issued under the terms of this Chapter shall not be transferable, and in the event of a

change of personnel in the management and control of the business, the applicant shall file with the Department of Financial Management a notice specifying the change, giving names and addresses of those persons so designated. A change in the ownership or control of the business will require a new permit. (Ord. C-6622 § 1 (part), 1989)

5.24.210 Mock boxing and mock wrestling permit—Suspension or revocation.

At any time after the issuance of a permit, if it appears to the City Council that the permittee has violated any of the terms of the application and permit, or any of the provisions of this Chapter as amended, or has in any manner conducted the mock boxing or mock wrestling exhibitions or contests in an illegal or disorderly manner or has permitted any ordinance of the City or any law of the State to be violated, the permit for the conduct of mock boxing or mock wrestling exhibitions may be suspended or revoked by the City Council. (Ord. C-6622 § 1 (part), 1989)

5.24.220 Mock boxing and mock wrestling—Regulations.

A. There shall be no indecent exposure or lewd conduct at any time.

B. No person who is obviously under the influence of alcohol or drugs shall be allowed to participate in any mock boxing or mock wrestling exhibition or contest.

C. The permittee shall provide a referee who shall supervise all mock boxing or mock wrestling exhibitions or contests to prevent any exposure or fondling of the participants' private parts or female breasts and to protect participants and patrons from physical injury. The referee shall prevent or stop any lewd or sexually suggestive actions and shall require compliance with all laws and the conditions attached to a permit.

D. No minor under eighteen (18) years old shall be permitted in the mock boxing or mock wrestling entertainment area except regularly employed service personnel.

E. The permittee shall be bound by and shall abide by any subsequently adopted regulations or ordinances which pertain to the conduct of mock boxing or mock wrestling. (Ord. C-6622 § 1 (part), 1989)

CHAPTER 5.26 CARNIVALS, CIRCUSES AND RELATED CONCESSIONS

5.26.010 Carnival.

Every person conducting, managing, carrying on or maintaining any game, exhibition, entertainment feature, show, amusement or recreational device or concession booth at any carnival or local fair and charging or collecting any admission fee or purchase price, or accepting any freewill offering or other compensation therefor shall obtain from the City Manager any permit required by ordinance for the operation of such activity. (Ord. C-6260 § 1 (part), 1986)

5.26.020 Circus.

Every person conducting, managing or carrying on a circus shall obtain from the Director of Financial Management a written permit to conduct such circus, the application for such permit to be made in writing to the Director of Financial Management and such permit issued pursuant to this Section shall be nontransferable. (Ord. C-6260 § 1 (part), 1986)

5.26.030 Carnival concessions.

A. No person, whether as principal, agent, employee, or otherwise, shall conduct, manage, carry on or maintain any game, exhibition, entertainment feature, show, amusement, or recreational device or concession booth at any carnival or local fair without first obtaining a permit so to do, in writing, from the City Manager or his designee. The applicant shall set forth the exact location at which it is proposed to conduct such activity and its expected duration, names of all persons interested in or associated with such activity, the present address of all such persons and such other data as the City Manager might deem pertinent to the particular activity.

B. If the City Manager finds and determines that the conduct of the activity for which the permit is requested will comport with the public safety and welfare, and for this purpose he may consider all matters bearing upon the place where it is proposed to conduct such activity, the character, reputation and moral fitness of those who will be in charge of it or partake in its operation, together with any other evidence relating thereto, he shall grant such permit; otherwise, he may deny the same.

C. Any permit issued pursuant to this Section shall not exceed a maximum of five (5) days, and shall be nontransferable. (Ord. C-6260 § 1 (part), 1986)

5.26.040 Fees.

Each and every application for any permit required under this Chapter 5.26 shall be accompanied by a nonrefundable permit fee established by resolution adopted pursuant to Section 5.04.040. (Ord. C-6260 § 1 (part), 1986)

CHAPTER 5.28 CHARITABLE SOLICITATIONS

5.28.010 Definitions.

A. "Association" means a group of persons as defined in Section 1.08.130 and includes a corporation.

B. "Contribution" means a donation given either individually or in concert with others, whether of food, clothing, money, or property, and includes donations under the guise of a loan of money or property.

C. "Permittee" means the holder of a permit to solicit contributions issued pursuant to this Chapter.

D. "Philanthropic" means beneficial to mankind and includes the words and expressions charitable, social service, benevolent, patriotic and civic activity.

E. "Promoter" means any person as defined in Section 1.08.130, who, for pecuniary compensation received, or to be received, is engaged, or holds himself out to the public as being engaged, in the business of soliciting or receiving contributions, or conducting, managing or carrying on any drive or campaign for, or on behalf of, any other person. No bona fide employee of such charitable association shall be considered a promoter within the meaning of this Chapter.

F. "Solicitation" means both a direct oral or written asking or request and also the distribution, circulation, mailing, posting or publishing of letters, posters, handbills, cards, folders, pamphlets, newspapers, books or circulars, or the giving or making of an announcement to the press, or over the radio, television, telephone or telegraph, concerning or involving an appeal, assemblage, athletic or sports event, bazaar, benefit, campaign, contest, dance, drive, entertainment, exhibition, exposition, party, performance, picnic, sale or social gathering by which the public, or any portion thereof, is requested to meet, or patronize, or to which the public, or any portion thereof, is requested to meet, gather, or patronize, or to or by which the public, or any portion thereof, is requested to make a contribution by reason of, or because of, any philanthropic purpose, or benefit, connected with, or involved in, any such appeal, or event. "Solicitation" also means and includes the sale of any advertisement, advertising space, book, card, chance, coupon, device, magazine, membership, merchandise, subscription, ticket or thing whatsoever, in connection with which, or when or where, any appeal is made for any philanthropic purpose whatever and the name of any philanthropy or philanthropic association is used, or referred to, in any such appeal as an inducement, or reason, for the making of any such sale, or when or where in connection with any such sale, offer to sell, or attempt to sell, any statement is made that the whole or any part of the proceeds from any such sale or selling, will go to, or be donated to, any philanthropic purpose or association. A solicitation, as defined in this Section, shall be deemed completed when made, whether or not the person making the same receives any contribution or makes any sale as referred to in this Section.

G. "Solicitor" means any person who solicits or receives contributions for, or on behalf of, any other person or charitable association under the direction of such person or such charitable association, or a promoter. (Ord. C-6260 § 1 (part), 1986)

5.28.020 Exceptions.

The provisions of Sections 5.28.030 through 5.28.200 shall be inapplicable to:

A. Any solicitation made upon premises owned or occupied by the person upon whose behalf such solicitation is made;

B. Any solicitation for the relief of any individual specified by name at the time of the solicitation where the entire amount collected, without any deductions whatever, shall be turned over to the named beneficiary; and

C. Solicitations made solely for evangelical, missionary or religious purposes. (Ord. C-6260 § 1 (part), 1986)

5.28.030 Emergency waiver.

The City Manager may waive the whole, or any part, of the provisions of this Chapter when he deems such waiver necessary for the purpose of meeting any extraordinary emergency or calamity, when time is of the essence of needed succor or relief. (Ord. C-6260 § 1 (part), 1986)

5.28.040 Solicitor authorization.

No solicitation shall be made in the name, or on behalf, of any philanthropic corporation, or association, unless:

A. The solicitor has been authorized in writing by such corporation, or association, and such authorization shall be signed by at least two (2) officers of the corporation or association;

B. A copy of such authorization has been previously filed with the Police Department, which authorization, and the copy thereof so filed, shall each bear a specimen signature of the solicitor;

C. The solicitor shall have the written authorization with him when making any such solicitation and shall exhibit the authorization on request of the person solicited, or any Police Officer. The authorization shall expressly state on its face that it is valid for a period of no longer than three (3) months from the date of the issuance thereof, which date shall be stated therein; and

D. The solicitor has all legally required evidence of compliance with all of the applicable requirements of law. (Ord. C-6260 § 1 (part), 1986)

5.28.050 Permit—Notice of intention—Contents.

A. No person shall authorize any other person to make any solicitation, and no person shall make any solicitation, unless a permit to so solicit has been obtained from the City Manager within one (1) year of, and at least ten (10) days prior to, the beginning of such solicitation. Except as provided in this Chapter, such permit shall be issued by the City Manager upon the filing with the Police Department of a notice of intention to solicit, which notice of intention shall contain such of the following information as is pertinent, and such other information as the City Manager may require:

1. The purpose of the solicitation and use of the contributions to be solicited;

2. A specific statement, supported by reasons and, if available, figures, showing the need for the contribution proposed to be solicited;

3. The character of such solicitation and how it will be made or conducted;

4. The expenses of the solicitation, including all commissions, costs of collection, salaries and other items, if any, regardless of from what funds such expenses are payable;

5. What portion of the contributions collected, as a result of the solicitation, will remain available for application to the specific purposes declared in the notice of intention as the object of such solicitation, and what portion of the contributions collected will be utilized within the City;

6. A specific statement of all contributions collected or received for the same purpose by those on whose behalf the notice of intention is filed, within the calendar year immediately preceding the date of such filing. The expenditures, or use made of such contributions, together with the names and addresses of all persons receiving salaries, wages, compensation, commissions or emoluments from such contributions, and the respective amounts thereof;

7. The names and addresses of the officers and directors of any corporation or association for which the solicitation referred to in the notice of intention is proposed therein to be made;

8. A certified true and correct copy of the resolution of the Board of Directors of any corporation or association upon behalf of which such permit is sought to be obtained;

9. A statement of any agreement made with any agent, solicitor, promoter, manager or conductor of such solicitation, together with a certified true and correct copy of each agreement which may be in writing, or, if not in writing, written details thereof. A true and correct copy of any change in such agreement, or a new or further agreement if in writing, or, if not in writing, complete written details thereof, shall be filed with the City Manager within twenty-four (24) hours after such change;

10. A certified, true and correct copy of the articles of incorporation, together with any amendments thereto, and a copy of the bylaws currently in effect of any corporation or association upon behalf of which such permit is sought to be obtained, and a written statement or other pertinent data which may be required setting forth the nec-

essary facts in support of any claim that such corporation or association for religious, charitable, philanthropic or patriotic purposes;

11. A statement that the signers of such notice have read and are familiar with the provisions of this Chapter and will require all solicitors engaged in such solicitation to read and be familiar with the provisions of this Chapter prior to making any such solicitation;

12. Where paid solicitors are to be used, the person applying for a solicitation permit shall furnish, on forms prescribed by the Police Department, his photograph and fingerprints. Where the applicant is a corporation or association, its president shall furnish his picture and fingerprints. A fingerprint processing fee determined by the City Council by resolution shall be paid to the Police Department.

B. Whenever, in the opinion of the City Manager, the notice of intention filed with the Police Department does not disclose sufficient information for the protection of the public concerning the facts required in this Section to be stated in such notice of intention, or concerning the person on whose behalf such solicitation is proposed to be made, then, upon the request of the City Manager therefor, such person shall, within forty-eight (48) hours or such additional time as may be allowed by the City Manager, file in writing with the Police Department such additional information as he may specifically require upon the foregoing subjects. The notice of intention, and such additional information provided for in this Section, shall be signed by the person intending to make such solicitation, or if such solicitation is to be made by, or on behalf of, any corporation or association, by at least two (2) officers thereof. (ORD-10-0014, § 8, 2010; Ord. C-6260 § 1 (part), 1986)

5.28.051 Solicitation permit—Bond.

At the same time a notice of intention to solicit is filed, a person applying for a solicitation permit and who intends to use paid solicitors shall file and thereafter maintain with the Police Department, if a permit is issued, a good and sufficient bond as prescribed in regulations issued by the City Manager pursuant to Section 2.84.040. (Ord. C-7934 § 1, 2004: Ord. C-6260 § 1 (part), 1986)

5.28.060 Permit—Notice of intention—Investigation.

A. In connection with any solicitation where a notice of intention has been filed with the Police Department, the City Manager, or his representatives, shall have the power to investigate the allegations in the notice of intention and in statements or reports filed with the Police Department pertaining to the solicitation. The City Manager shall have access to, and the right to inspect and make a copy of, all the books, accounts and papers of the applicant pertaining to the solicitation or the use or expenditure of any contribution so solicited. The City Manager shall also have power to investigate at any time the methods of making or conducting any such solicitation.

B. The City Manager shall disapprove any notice of intention and deny a permit, or shall revoke any permit previously issued, when he finds that the holder thereof or the applicant therefor, or any of the holder's or applicant's officers, agents, employees, solicitors, associates, managers, conductors, or promoters has:

1. Violated any of the provisions of this Chapter or any of the provisions of any other law or ordinance regulating solicitation for charities or philanthropic work; or

2. Made any false statement or misstatement in the application for a solicitation permit; or

3. Repealed;

4. Made false statements in order to procure donations; or

5. Improperly diverted solicited contributions from the proposed purposes for such solicitation; or

6. Been determined not to be a nonprofit charitable association; or

7. Shown that the proposed solicitation is not primarily for charitable or philanthropic work or purposes.

Otherwise, he shall approve the application and issue the permit.

C. If the City Manager denies a solicitation permit, he shall give written notice to the applicant specifying the reasons for such denial and stating applicant's right to appeal this decision to the City Council within ten (10) days after service of the notice by mail pursuant to Section 5.28.190.

D. If the City Manager revokes a solicitation permit, he shall give written notice to the permittee specifying the reasons for such revocation and stating the permittee's right to appeal this decision to the City Council within ten (10) days after service of the notice by certified mail pursuant to Section 5.28.190.

The revocation shall take effect ten (10) days after service of the notice of revocation. If the decision is appealed to the City Council, the revocation is stayed until the City Council acts on the appeal.

If a solicitation permit is revoked, the permittee shall file its required closing reports and financial statements within thirty (30) days after the effective date of revocation. (Ord. C-6430 § 3 (part), 1987; Ord. C-6325 § 15, 1986: Ord. C-6260 § 1 (part), 1986)

5.28.070 Permit—Notice of intention—Filing.

The City Manager, upon approving the issuance of a solicitation permit pursuant to this Chapter, shall file with the City Clerk a copy of the notice of intention, together with a copy of the information card, if any, issued to the permittee, and with any additional information gained from any investigation made by the City Manager. The notice of intention, information card and additional information shall be open to the public for inspection. A solicitation permit is valid only for the calendar year in which it is issued and shall automatically expire on December 31 of each year. Application for renewal of a permit shall follow the same procedure as a new application. (Ord. C-6260 § 1 (part), 1986)

5.28.071 Paid solicitors—Registration.

A. It is unlawful for any person for pecuniary compensation or consideration to solicit or receive on behalf of another, any contribution governed by this Chapter unless such person is registered as a paid solicitor by the Police Department.

B. No person shall be registered as a paid solicitor unless he shall first furnish to the Police Department, on forms prescribed by the Department, his photograph and fingerprints. A fingerprint processing fee together with a registration fee as determined by the City Council by resolution shall be paid to the Police Department.

C. No person shall be so registered unless that person first files with the Police Department and thereafter maintains a bond as prescribed in regulations issued by the City Manager pursuant to Section 2.84.040.

D. The registrant must notify the Police Department in writing of any change of address; if the registrant is employed by more than one (1) person, association, corporation or institution, he must inform the Police Department in writing of such fact and of any subsequent termination or change of employment.

E. Each registration required by this Section shall automatically expire on December 31 of each year. Thereafter, such registrant may be reregistered by the Police Department in the same manner as a new registration. (ORD-10-0014, § 9, 2010; Ord. C-7934 § 2, 2004; Ord. C-6430 § 1, 1987; Ord. C-6260 § 1 (part), 1986)

5.28.080 Promoter registration certificate—Information required.

A. Except as provided in this Section, no promoter shall solicit, manage, or otherwise engage in the business of soliciting, or receiving, contributions for any person unless such promoter first obtains a promoter's registration certificate. To obtain said certificate, the promoter shall file with the Police Department, on forms provided thereby, at least ten (10) days prior to the proposed solicitation, an application for a certificate which shall be in writing and under oath. Such application shall include, in addition to any information required by the City Manager:

1. The name and address of applicant, and if a corporation, the names and addresses of its

managing officers and agents, and if an unincorporated association, firm or partnership, the name and address of each member thereof;

2. Repealed;

3. The name and address of the person on whose behalf the promoter intends to solicit contributions, manage or conduct a drive or campaign, or otherwise secure contributions or donations;

4. The general plan, character and method in or by which applicant proposes to conduct business as a promoter; and

5. A showing that such promoter has sufficient financial responsibility to carry out the obligations incident to the proposed solicitation drive or campaign.

B. At the time of filing the application applicant shall file, and if he is granted a promoter's registration certificate shall thereafter maintain, a bond approved as to sufficiency by the City Manager and as to form by the City Attorney in the penal sum of five thousand dollars ($5,000.00) Such bond shall be conditioned upon the payment of any direct pecuniary loss which may be sustained by any donee or by any person on whose behalf any contribution is solicited or received resulting directly from any illegal act by the promoter. Any person who sustains any injury covered by the bond may, in addition to any other remedy which he may have, bring an action in his own name upon the bond for the recovery of any damage sustained by him.

C. The City Manager or his representatives shall examine the application and make such further investigation as deemed advisable. If, from such examination and investigation, the City Manager is satisfied in all of the following particulars, he shall approve the application and authorize the issuance by the Police Department of a promoter's registration certificate; otherwise he shall disapprove the application and the issuance of the certificate:

1. Repealed;

2. That neither the applicant, nor any officer, agent, partner or member of applicant, has violated any provision of this Chapter, nor any provision of any law or ordinance regulating charities or philanthropic work;

3. That each and all statements in the application are true;

4. That neither applicant, nor any officer, agent, partner nor member thereof has engaged in any fraudulent transaction or enterprise;

5. That the business will be conducted fairly and honestly;

6. That applicant has sufficient financial responsibility to carry out the obligations incident to any proposed solicitation; and

7. Repealed.

D. The Police Department shall collect a fee determined by the City Council by resolution with each such application so filed. Each promoter's registration certificate shall terminate one (1) calendar year from date of issue, or upon termination or cancellation of the bond required by this Chapter.

E. The holder of a promoter's registration certificate shall be reregistered by the Police Department upon filing of an application as required in this Section and upon payment of a fee and the posting of a bond in the amounts as determined by the City Council by resolution which shall comply with all requirements of this Section.

F. Such registered promoter shall notify the City Manager in writing of any change in address, and if the registered promoter is employed by more than one (1) person he must so notify the City Manager in writing of such fact, and of any subsequent termination or change of employment or, if a corporation, he must notify the City Manager in writing of any change in managing officers or agents or, if an unincorporated association or firm, of any change in members, partners or agents. (ORD-10-0014, § 10, 2010; Ord. C-6430 § 3 (part), 1987: Ord. C-6260 § 1 (part), 1986)

5.28.090 Promoter registration certificate—Denial or revocation.

A. The City Manager may deny, revoke or suspend any promoter's registration certificate upon being satisfied that the holder thereof or any of its

officers, partners or agents has violated any provision of this Chapter, or any other law or ordinance regulating charities or philanthropic work, or has made any misstatement in the application, or that he has made false statements in order to procure a contribution or donation, or has engaged in any fraudulent transaction or enterprise, or that the holder is conducting the business in an unfair, dishonest, unjust or inequitable manner. Any holder of such a certificate which is revoked or suspended by the City Manager shall, within twenty-four (24) hours thereafter, present such certificate to the City Manager.

B. Any holder of such a certificate which has been revoked or suspended by the City Manager, or any applicant for such certificate which has been disapproved by the City Manager, is entitled to an appeal to the City Council. Such appeal shall be taken by such applicant's filing notice thereof with the City Clerk within ten (10) days of such suspension, revocation or denial. Such appeal shall be in writing and shall set forth the grounds of appeal. An appeal shall be heard by the City Council at its next regular meeting after the filing of such notice or at such later time as shall be determined by the City Council. On the hearing of the appeal, all facts connected with the revocation, suspension or denial of the certificate shall be presented to the Council and the Council may make such further investigation as it deems necessary and may affirm or reverse the decision of the City Manager. In the event the decision of the City Manager is reversed, the Council shall direct the City Manager to issue, or reinstate, as the case may be, such certificate.

C. The revocation, or suspension, of such a certificate shall not be a bar to the prosecution of the holder thereof for a violation of any provision of this Chapter. (Ord. C-6430 § 2, 1987; Ord. C-6260 § 1 (part), 1986)

5.28.110 Bond cancellation.

All bonds required by this Chapter shall remain in force and effect for the entire period of registration, except that sureties may cancel any such bond and thereby be relieved of further liability thereunder by delivering written notice thereof to the City Manager not less than thirty (30) days prior to the effective date of such cancellation. Such cancellation shall not affect any liability incurred or accrued thereunder prior to the effective date thereof. (Ord. C-6260 § 1 (part), 1986)

5.28.120 Solicitation regulations.

A. Unless the requirement is waived by the City Manager as provided in this Section, no person shall make any solicitation as defined in this Chapter unless such person exhibits to every person solicited a true and correct copy of an information card which shall be issued by the City Manager whenever he issues a solicitation permit.

This information card shall state that it is issued for public information purposes only and that it is not the City's endorsement of the solicitation. The information card shall include the following:

1. The name and address of the combined campaign, each organization, or fund on behalf of which all or any part of the money collected will be utilized for charitable purposes;

2. If there is no organization or fund, the manner in which the money collected will be utilized for charitable purposes;

3. The amount, stated as a percentage of the total gift or purchase price, that will be used for charitable purposes;

4. If paid fundraisers are paid a set fee rather than a percentage of the total amount raised, the card shall show the total cost that is estimated will be used for direct fundraising expenses;

5. If the solicitation is not a sale solicitation, the card may state, in place of the amount of fundraising expenses, that an audited financial statement of such expenses may be obtained by contacting the organization at the address disclosed;

6. The nontax-exempt status of the organization or fund, if the organization or fund for which the money or funds are being solicited does not have a charitable tax exemption under both federal and State law;

7. The percentage of the total gift or purchase price which may be deducted as a charitable contribution under both federal and State law. If no portion is so deductible the card shall state that "This contribution is not tax deductible";

8. If the organization making the solicitation represents any nongovernmental organization by any name which includes, but is not limited to, the term, "officer", "peace officer", "police", "law enforcement", "reserve officer", "fireman", "firefighter", "deputy", "deputy sheriff", which would reasonably be understood to imply that the organization is composed of law enforcement or safety personnel, the solicitor shall give the total number of members in the organization and the number of members working or living within the County where the solicitation is being made and if the solicitation is for advertising, the State-wide circulation of the publication in which the solicited ad will appear.

When making any solicitation, the solicitor shall read the information card to the person solicited, or present it to such person for his perusal and allow him sufficient opportunity to read it, before accepting any contribution.

B. In each instance where more than one (1) person solicits contributions under one (1) solicitation permit, each such person shall be supplied with a true and correct or facsimile copy of the information card issued by the City Manager. It shall be the responsibility of the organization or person to whom the solicitation permit has been issued to supply each such solicitor with such copy of the information card, unless the requirement for exhibiting such cards is waived by the City Manager as elsewhere provided in this Chapter.

C. When a campaign or drive for raising funds for any philanthropic purpose is given general publicity through the press, or otherwise, and when more than twenty-five (25) persons serve as solicitors without compensation for their services, the City Manager may, upon application by the person filing the notice of intention, waive the requirements of this Chapter with respect to information cards and the filing of copies of written authorizations of the solicitors serving without compensation, if it is established to the satisfaction of the City Manager and he finds that the publicity concerning the solicitation fully informs the general public and the persons to be solicited as to the facts required in this Section to be set forth on the information card.

D. Upon receipt of additional information which, in the opinion of the City Manager, may render incorrect any statement set forth in the information card, the City Manager shall recall every such information card and amend or correct the same and shall issue in lieu thereof a new information card amended or corrected in accordance with such additional information. Upon receipt of notification to return any information card for amendment or correction and new issue, as provided in this Section, the person who filed the notice of intention for the solicitation for which such card was issued shall present such recalled information card to the Police Department within twenty-four (24) hours from the time of receipt of said notification.

E. Upon request of the City Manager all information cards issued pursuant to this Chapter shall be returned to the Police Department upon completion of the solicitation for which they are issued, or at the expiration of the period for which they are valid. (Ord. C-6385 §§ 1, 3, 1987; Ord. C-6260 § 1 (part), 1986)

5.28.122 Solicitations without direct personal contact—Disclosure of information.

If the charitable solicitation is made by telephone, radio, television, letter or any other means not involving direct personal contact with the person solicited, this solicitation shall clearly disclose the information required on the information card by Subsection 5.28.120.A. This disclosure requirement shall not apply to any radio or television solicitation of sixty (60) seconds or less.

If the charitable gift or sale is subsequently consummated, the information card required by Subsection 5.28.120.A shall be mailed to or otherwise delivered to the donor or buyer with a receipt and with items purchased or otherwise relevant to the solicitation. (Ord. C-6385 § 2, 1987)

5.28.130 Solicitation box or receptacle.

A. No person shall solicit, nor authorize any other person to solicit, any contribution for any purpose whatever by means of any box or receptacle unless a notice of intention, as required by this Chapter, has first been filed with the Police Department, except where such solicitation is made upon the privately owned or controlled premises of the solicitor not open or accessible to the general public; nor shall any such solicitation be made upon or in any public park, street, or any place or premises owned or controlled by the City, unless written permission therefor first has been obtained from the City Manager.

B. In every solicitation by box or receptacle where notice is required to have been given to the Police Department and an information card issued by the City Manager, an inscription shall be conspicuously placed on or attached to each box or receptacle containing a legible and true copy of such information card and an identification mark or number. A written list showing the number or identification mark of each receptacle or box and the location thereof shall be maintained by the permittee and shall be available upon demand of the City Manager. (Ord. C-6260 § 1 (part), 1986)

5.28.140 Receipt for contribution.

No person shall solicit any contribution of money for any charitable purpose unless such person tenders to each person making such contribution a written receipt signed by the solicitor, except that no receipt need be tendered if a donation of money is made by placing of same in a locked receptacle of a type approved by the City Manager or the donation of money is in an amount less than one dollar ($1.00). Such receipt shall include the name of the person upon whose behalf the solicitation is made, the amount of the contribution, the name of the donor and a statement, if so requested by donor, of any limitations on the use of the donation or special purposes to which the donation is to be applied. (Ord. C-6260 § 1 (part), 1986)

5.28.150 Accounting.

No persons shall solicit any contribution for any charitable purpose unless such person is maintaining a system of accounting whereby all contributions and all disbursements therefrom are entered upon the books or records of its Treasurer or other financial officer. (Ord. C-6260 § 1 (part), 1986)

5.28.160 Report.

Every person soliciting any contribution pursuant to a permit issued under this Chapter shall file with the City Manager within thirty (30) days after the close of any such solicitation, or within thirty (30) days after a demand therefor, a report stating the contributions secured from, or as a result of, any such solicitation, and in detail all expenses of, or connected with, such solicitation, and showing exactly for what uses and in what manner all such contributions were or are to be disbursed or distributed, including the distribution of contributions disbursed, or to be disbursed, for philanthropic purposes within the City. Every such report shall be made on forms to be furnished by the Police Department and signed by the person filing the notice of intention for such solicitation as provided in this Chapter. Such report, if made by any such corporation or association, shall be signed by at least two (2) officers thereof, provided that such report need be filed only on behalf of the permittee and not by an individual soliciting on behalf thereof. (Ord. C-6260 § 1 (part), 1986)

5.28.170 False identification prohibited.

In making any solicitation, no person shall use a fictitious name, nor an alias, nor represent his name to be any other than his full, true and correct name, nor make any such solicitation without, at the time, giving to the person solicited for such contribution the full, true and correct name of the person soliciting and on behalf of whom such solicitation is made, nor impersonate any other person in making any such solicitation. (Ord. C-6260 § 1 (part), 1986)

5.28.180 Fraud prohibited.

No person shall make any misstatement nor perpetrate any fraud or deception in connection

with the solicitation of any contribution for any philanthropic purpose. (Ord. C-6260 § 1 (part), 1986)

5.28.190 Permit—Denial—Revocation—Appeal.

Any applicant or permit holder who is dissatisfied with the revocation or denial of any solicitation permit by the City Manager may appeal such decision to the City Council. Such appeal shall be in writing and filed with the City Clerk within ten (10) days after service of notice of such decision setting forth the grounds of appeal. At the hearing of such appeal, all facts connected with the revocation or denial of the permit shall be presented to the City Council, and the City Council may make such further investigation as it deems necessary; after the hearing, the City Council shall affirm or reverse the decision of the City Manager; and in the event the City Manager's decision is reversed, the Council shall direct him to reinstate or approve the permit. The action of the City Council shall be final and shall take effect when written notice thereof is served by mail. (Ord. C-6260 § 1 (part), 1986)

5.28.200 Revocation of permit not to bar prosecution.

The revocation of a permit as provided in this Chapter shall not be a bar to the prosecution of the holder thereof for a violation of any provision of this Code. (Ord. C-6260 § 1 (part), 1986)

CHAPTER 5.30 CIGARETTE VENDING MACHINES

5.30.010 Definitions.

As used in this Chapter:

A. "Machine" means and includes any type cigarette vending machine or contrivance from or by which cigarettes, tobacco, or any tobacco products are dispensed or sold.

B. "Operator" means and includes the person owning and distributing the machines. (Ord. C-6260 § 1 (part), 1986)

5.30.020 Regulation of vending machines.

Location and/or operation of cigarette or tobacco vending machines as defined in Section 5.30.010 within the City is prohibited, except in places where persons under the age of twenty-one (21) are not allowed. (Ord. C-7132 § 7, 1993: Ord. C-6916 § 2, 1991: Ord. C-6879 § 2, 1991: Ord. C-6260 § 1 (part), 1986)

Note—Enacted as a result of voter approval of Ordinance No. C-7132.

5.30.030 Minors prohibited.

No person under the age of eighteen (18) years shall purchase, take or receive from a machine the product thereof. (Ord. C-6260 § 1 (part), 1986)

CHAPTER 5.32 COIN AND STAMP DEALERS

5.32.010 Definitions.

The following words shall have the signification attached to them in this Section, unless otherwise clearly apparent from the context:

A. "Coin dealer" means and includes any person engaged in, or conducting the business in the City, of buying or selling, as owner or consignee, or exchanging any new or used coins, tokens, paper money, and related objects normally dealt with by a numismatist other than a pawnbroker, secondhand dealer, junk dealer or junk collector, as defined by the ordinances of the City.

B. "Stamp dealer" means and includes any person engaged in, or conducting the business in the City, of buying or selling, as owner or consignee, or exchanging, any new or used postage and imprinted stamps, and related objects normally dealt with by a philatelist other than a pawnbroker, secondhand dealer, junk dealer or junk collector. (Ord. C-7423 § 17, 1996: Ord. C-6260 § 1 (part), 1986)

5.32.020 Permit—Required.

No person shall engage in, carry on or conduct the business of a coin dealer or stamp dealer without first having obtained a permit in accordance with this Chapter, and complying with any and all requirements and regulations as contained

and set forth in this Chapter. (Ord. C-7423 § 17, 1996: Ord. C-6260 § 1 (part), 1986)

5.32.030 Permit—Application.

A. Each person, before obtaining a permit to carry on the business of a coin dealer or stamp dealer, shall make a written application on forms furnished by the Director of Financial Management, which shall be signed by such applicant. Additionally, the applicant shall be photographed and fingerprinted by the Police Department.

In the event the applicant is a corporation, an officer of the corporation shall furnish the information required in this Section, and, in addition, shall furnish the names of all other corporate officers and other information as required.

B. The Chief of Police shall issue the permit to the applicant or deny the application within sixty (60) days from the date thereof. Grounds for denial of such application shall be:

1. The applicant has been convicted of a felony or any offense related to the theft or misappropriation of the property of others such as theft, fraud, receiving stolen property or burglary;

2. The applicant has had a previous permit to engage in the business of a coin dealer or stamp dealer revoked or suspended in any jurisdiction;

3. The applicant, based upon his/her past criminal record, would be a poor risk in the business of coin dealer or stamp dealer. (Ord. C-7423 § 17, 1996: Ord. C-6260 § 1 (part), 1986)

5.32.040 Permit—Fee.

A. Every person applying for a permit under this Chapter for maintaining, carrying on or conducting the business of a coin dealer or stamp dealer shall pay a fee as established by resolution adopted pursuant to Section 5.04.040.

B. No permit issued under the provisions of this Chapter shall be transferable nor shall any person conduct either the business of a coin dealer or stamp dealer under the permit of another person, except as may be provided in this Chapter. (Ord. C-7423 § 17, 1996: Ord. C-6260 § 1 (part), 1986)

5.32.050 Inspection authorized.

The premises of all coin dealers and stamp dealers shall, at all times, when open for business, be subject to police inspection by members of the Police Department in the pursuit of their official duties, and no person shall hinder or obstruct any such authorized police officer in making such inspection. Premises, as used in this Section, means that area which is used to display the goods or personal property offered for sale to the public. (Ord. C-7423 § 17, 1996)

5.32.060 Other requirements.

Any person engaged in the business of buying and selling tangible personal property as defined in Section 21627 of the Business and Professions Code shall be required to obtain a secondhand dealer license as defined and regulated by Chapter 5.64 of this Municipal Code. (Ord. C-7423 § 17, 1996)

CHAPTER 5.34 ESCORTS AND ESCORT BUREAUS

5.34.010 Permit required.

A. Every person advertising by sign, circular, handbill, newspaper, periodical, magazine or other publication, or by any other means whatsoever, who, for money or reward, or any consideration, offers to do personally or to furnish the services of others to do the following things shall pay the license tax required and shall also procure a permit in the manner described in this Chapter:

1. Escort, accompany, or consort with other persons to, from or about social affairs, entertainment, places of public assembly or places of amusement;

2. Escort, accompany or consort with other persons in or about any place of public or private resort or within any private quarters, for hire or donation;

3. Escort, accompany or consort with other persons in or about any business or commercial establishment or part or portion thereof, for hire or donation. (Ord. C-6325 § 16, 1986: Ord. C-6260 § 1 (part), 1986)

5.34.020 Exceptions.

This Chapter shall not apply to any person who accompanies others as an incident to their trade, profession, such as nurses, bodyguards or tour guides, nor to any person, business, firm or company lawfully conducting an employment agency. (Ord. C-6260 § 1 (part), 1986)

5.34.030 Permit application.

A. Every person desiring to provide escort services as provided in Section 5.34.010 shall make application for a permit to the Director of Financial Management. The application shall provide the following:

1. Name and address of the applicant, and the name under which the proposed business is to be conducted;

2. Address of the proposed location for the conduct of the proposed business;

3. Record of conviction for violations of the law, excluding minor traffic violations;

4. The applicant shall also be photographed by the Police Department. One (1) photograph shall be attached to the original application, one (1) to the duplicate, and one (1) to the permit, if a permit to conduct or carry on the business is granted the applicant;

5. The fingerprints of the applicant will be provided to the Police Department;

6. Address, City and State and dates when this applicant practiced a similar business, either alone or in conjunction with others;

7. Written proof that the applicant is over the age of eighteen (18);

8. If the applicant is a corporation, the name of the corporation shall be set forth exactly as shown in its articles of incorporation or Charter, together with the State, date of incorporation, incorporation number, and the names, residence addresses, and dates of birth of each of its current officers and directors, and each stockholder holding more than five percent (5%) of the stock in the corporation. If the applicant is a limited partnership, the applicant shall furnish a copy of the certificate of limited partnership as filed with the County Clerk. If one (1) or more of the partners is a corporation, the provisions of this Subsection pertaining to corporations shall apply. The corporation or partnership applicant shall designate one (1) of its officers or general partners to act as its responsible managing officer and responsible party authorized to accept service of process on behalf of the permittee. Such responsible party shall complete and sign all application forms required of an individual applicant under this Chapter, but only one (1) application fee shall be charged;

9. In the event the applicant is not the owner of record of the real property upon which the escort bureau is or is to be located, the application must be accompanied by a notarized statement from the owner of record of the property acknowledging that an escort bureau is or will be located on the property. In addition to furnishing such notarized statement, the applicant shall furnish the name and address of the owner of record of the property, as well as a copy of the lease pertaining to the premises in which the escort bureau is or will be located;

10. A definition of the service to be provided;

11. The true names and residential addresses of all persons employed or intended to be employed by the applicant.

B. Each applicant for an escort permit, or renewal thereof, shall also furnish a certificate from a medical doctor licensed to practice in the State of California, stating that the applicant has, within thirty (30) days immediately preceding the date of the application, been examined and found to be free of any contagious or communicable disease;

C. Each applicant hereunder shall also furnish such other and further information as the Director of Financial Management, upon recommendation of the Chief of Police, may find necessary to process the application. (Ord. C-6260 § 1 (part), 1986)

5.34.040 Permit—Nontransferable.

No permit issued under this Chapter shall be transferred in any manner, whether by operation of law or otherwise, from location to location or from person to person. Every escort bureau per-

mittee shall report immediately in writing to the Director of Financial Management, Chief of Police and City Health Officer any changes or transfers of escorts. (Ord. C-6260 § 1 (part), 1986)

5.34.050 Investigation.

Upon receipt of the completed application and the application fee, the Director of Financial Management shall refer the same to interested departments of the City, including, but not limited to, the Chief of Police, City Manager, City Prosecutor, Planning and Building Department, and the Fire Department, for investigation as to whether or not all the statements in the application are true and whether or not the property of the applicant qualifies and the extent to which it qualifies as property on which escort services may lawfully be conducted. Each department to which a completed application is referred shall complete its investigation and file a report with the Director of Financial Management within sixty (60) days of the date of the application. Any department to which an application is referred that does not file its report with the Director of Financial Management as provided herein shall be deemed to have recommended approval of the application. Upon either the receipt of the completed reports from all of the departments to which an application has been referred or the expiration of sixty (60) days from the date of the application, whichever event occurs first, the Director of Financial Management shall forward the application together with all completed reports to the Chief of Police. (Ord. C-6260 § 1 (part), 1986)

5.34.060 Permit issuance.

A. At the conclusion of the investigation, the Chief of Police shall approve the issuance of the permit if he finds:

1. All the information contained in the application or supporting data is true;

2. Neither the applicant, if an individual, nor any of the directors, officers or stockholders holding more than five percent (5%) of the stock of the corporation, nor any of the partners, including limited partners, the holder of any lien of any nature of profit-interest holder, manager, nor other person principally in charge of the operation of the existing or proposed escort bureau, nor any natural person employed or contracted with to be an escort or to provide escort services, has been convicted or pleaded nolo contendere or guilty to a misdemeanor or felony crime involving sexual misconduct, including, but not limited to, all offenses listed in Penal Code Section 290, Penal Code Sections 311.2 through 311.7, Penal Code Sections 314 through 318, and subsections (a), (b), (c), (d), or (h) of Section 647 of the Penal Code or any offenses involving pimping, pandering, prostitution or lewd conduct; or has permitted, through an act of omission or commission, his or her employee or agent to engage in any type of moral turpitude or sexual misconduct offense, whether misdemeanor or felony (under such circumstances, the conduct of the employee or agent, if such resulted in a conviction or a plea of nolo contendere or guilty, will be considered imputed to the principal and shall be grounds for permit denial);

3. The applicant has not had an escort bureau, introductory service or escort permit or other similar permit denied or suspended or revoked for cause by the City or any other City or County located in or out of this State;

4. No information has been brought to the attention of the Chief of Police as a result of the investigation which would cause the denial of the application.

B. The Director of Financial Management shall thereafter issue the permit when the required fee has been paid. (Ord. C-6260 § 1 (part), 1986)

5.34.070 Separate permit for each person.

A. Every natural person actively carrying on, conducting, or engaging in any of the activities for which a permit is required and enumerated in Section 5.34.010, on behalf of any permittee, shall file a separate application, be photographed and fingerprinted by the Police Department and approved as required by the permit provisions of this Chapter.

B. Prior to approval of a permit, the applicant shall submit a certificate from a medical doc-

tor who is licensed to practice in the State of California. The certificate shall state that the applicant has, within thirty (30) days immediately preceding the date of application, been examined and found to be free from any contagious or communicable disease. (Ord. C-7423 § 5, 1996: Ord. C-6260 § 1 (part), 1986)

5.34.080 Age of escorts.

A. No holder of an escort bureau permit shall employ any person under eighteen (18) years of age;

B. No holder of an escort bureau permit shall furnish any escort to, or accept employment from, any patron, customer or person to be escorted, who is under eighteen (18) years of age;

C. No holder of an escort permit shall escort, offer to escort or perform any activity described in this Chapter to any person under eighteen (18) years of age. (Ord. C-6260 § 1 (part), 1986)

5.34.090 Term of escort permit.

The term of an escort permit, unless sooner suspended or revoked, shall be for a period of one (1) year. (Ord. C-6260 § 1 (part), 1986)

5.34.100 Renewal of permits.

A. Any person permitted under this Chapter shall have thirty (30) days from the date of expiration to renew his/her permit.

B. On a biennial basis, permit renewal shall be contingent upon satisfactory compliance with all sections of this Chapter, including a current medical clearance and submission to a background investigation subsequent to a fingerprint examination. (Ord. C-7423 § 6, 1996: Ord. C-6325 § 17, 1986: Ord. C-6260 § 1 (part), 1986)

5.34.110 Escort identification card.

Each escort permit holder shall be issued an identification card which will also serve as an escort permit. The permit holder shall carry such card in a visible position upon his or her person when acting as an escort and produce the same for inspection upon request. Each permit holder shall immediately surrender, to the Chief of Police, any escort permit issued by the City upon the suspension, revocation or expiration of such permit, or upon leaving employment as an escort. (Ord. C-6260 § 1 (part), 1986)

5.34.120 Nuisance.

Any escort bureau operated, conducted or maintained contrary to the provisions of this Chapter shall be and the same is hereby declared to be an unlawful and a public nuisance and the City Prosecutor may, in addition to or in lieu of prosecuting a criminal action hereunder, commence an action or actions, proceeding or proceedings, for the abatement, removal or enjoinment thereof, in the manner provided by law, and shall take such other steps and shall apply to such court or courts as may have jurisdiction to grant such relief as will abate or remove such establishment and restrain and enjoin any person from operating, conducting or maintaining an escort bureau of introductory service contrary to the provisions of this Chapter. (Ord. C-6260 § 1 (part), 1986)

5.34.130 Suspension or revocation.

The suspension or revocation of a permit shall be governed by the provisions of Chapter 5.06. No person shall conduct any activity regulated by Section 5.34.010 after a permit for such activity has been revoked or during the time a permit therefor has been suspended. (Ord. C-6260 § 1 (part), 1986)

CHAPTER 5.35
MICROENTERPRISE HOME KITCHEN OPERATIONS

5.35.010 Purpose.

The purpose and intent of this Ordinance is to allow for small-scale, direct food sales from home-based food facilities to prioritize locally prepared foods to consumers. This entry into the food economy will help provide access to guidelines, training and safety resources and will continue the advancement of economic mobility for local small businesses by allowing these microentrepreneurs to be a part of the formal economy. This Ordi-

nance shall be administered and implemented by the Enforcement Officer. The requirements of this chapter are intended to:

A. Implement the California Health and Safety Code (CA HSC) to allow Microenterprise Home Kitchen Operations (MEHKOs);

B. Recognize that a residential property owner or resident has a limited right to conduct an unobtrusive MEHKO home occupation business from their residence and recognize that the business should be conducted in a manner that has little to no impact on surrounding residents;

C. Preserve the residential character of residential neighborhoods, where MEHKOs operate; and

D. Prevent the operation of a MEHKO from transforming a residential neighborhood into a commercial one. (ORD-26-0010 § 1, 2026)

5.35.020 Definitions.

The following words and phrases shall apply to this Chapter:

A. "Department" means any department, division, bureau, office, or other organizational unit of the City established by law or administrative action to carry out City functions, such as but not limited to, Health and Human Services Department, Environmental Health Bureau (Environmental Health); Community Development Department, Code Enforcement Bureau; Long Beach Fire Department; Financial Management Department, Business Services Bureau (Business Service); Long Beach Police Department, and all respective departments and jurisdictions as applicable.

B. "City" means City of Long Beach.

C. "Enforcement Officer" shall mean any City employee or authorized agent who is designated by the Health Officer or City Manager designee to enforce the provisions of the Code through administrative or civil means. The Enforcement Officer shall have the authority to: (a) inspect premises, facilities, vehicles, and equipment, (b) issue citations, notices of violation, and orders to comply, (c) enter into compliance agreements, and (d) refer matters to the City Prosecutor's Office for potential litigation.

D. "Meal" means the amount or quantity of food that is intended to be consumed by one customer in a single sitting. A meal may include one or more items, such as a main dish, appetizers, side dishes, beverages, baked goods, or desserts.

E. "MEHKO Permit" means an accessory permit to the Business License issued by the Department of Financial Management, Business Services Bureau.

F. "MEHKO Operator" means the resident of the private home who holds the permit for the MEHKO and is responsible for the operation.

G. "Microenterprise Home Kitchen Operation (MEHKO)" means a food facility as defined by the California Health and Safety Code (CA HSC).

H. "Permitted Area" means a private home kitchen described and authorized in the for the MEHKO, on-site consumer eating area, toilet room, janitorial or cleaning facilities, refuse storage area, and attached rooms within the home that are used exclusively for food, utensil and equipment storage. Common areas, detached accessory buildings, including garages and sleeping quarters, or second units are not included as a Permitted Area.

I. "Residential Dwelling Unit" or "Private Home" means one (1) or more rooms designed, occupied or intended for occupancy as separate, self-contained, permanent living quarters, including a single-family dwelling, apartment, condominium unit, or other residential dwelling. Separate housing units are those in which occupants live and eat separately from any other person in the building. Each dwelling unit has direct access from outside the building or through a common hall. Any area with a direct exterior access, a bathtub or shower, and a room other than the bathroom, which can be locked off from the remainder of the building, will be considered a dwelling unit per L.B.M.C. 21.15.910.

J. "Resident of a Private Home" means an individual who resides in the private home and not elsewhere for labor or other special or temporary purposes per CA HSC.

K. "Compact Mobile Food Operation" or "CMFO" means a mobile food facility as defined in the CA HSC.

L. "Food Handler" means an individual who is involved in the preparation, storage, or service of food in a food facility, as defined in the CA HSC. (ORD-26-0010 § 1, 2026)

5.35.030 Scope.

A. As set forth in the CA HSC, a city or county cannot prohibit the operation of, require a permit to operate, require a rezone of the property for, or levy any fees on, or impose any other restriction on, a MEHKO in any residential dwelling for zoning purposes. Operating a MEHKO does not constitute a change of occupancy for purposes of the CA HSC or for purposes of local building and fire codes. (ORD-26-0010 § 1, 2026)

5.35.040 Facility Permit Requirements.

A. Any individual seeking to operate a MEHKO must first obtain all required licenses and permits prior to operation, by submitting the applicable applications and paying the non-refundable application fee for each of the following:

1. A public health permit to operate a MEHKO with Environmental Health;

2. An annual business license per L.B.M.C. 3.80.253(I) from Business Services.

B. Upon receipt of complete applications for a public health permit, business license and MEHKO accessory permit, and the required non-refundable fees, the Departments shall review the application. The applications may be rejected or revisions may be required in order to meet the provisions of this chapter prior to approval of the applications.

C. Application Requirements for a Health Permit.

1. The application at a minimum shall include the requirements set forth in the CA HSC, including but not limited to a listing of the proposed equipment and standard operating procedures the MEHKO Operator intends to use and a list of any Food Handlers, as set forth in subsection 3, below.

2. The MEHKO Operator shall successfully complete and pass an approved and accredited Food Safety Certification Examination, in compliance with the CA HSC and include proof of current certification with the application.

3. If a MEHKO Operator plans to have any individual who is involved in the preparation, storage, or service of food as part of their operation, shall be subject to the Food Handler Card requirements. The MEHKO Operator must include proof of the Food Handler Card for every individual with the submission of the permit application. If a Food Handler is employed after the initial inspection is conducted, the MEHKO Operator will have thirty (30) business days from the date of hire to provide a copy of the employee's Food Handler Card to the Department. The MEHKO Operator shall have no more than one full-time equivalent employee, not including a household or family member, in accordance with the CA HSC.

4. Upon completion and approval of the initial application review, the MEHKO shall be subject to an initial inspection to be completed by Environmental Health to ensure minimum compliance with this Chapter and the CA HSC.

5. Upon verification by Environmental Health that all minimum requirements have been met, a public health permit shall be issued upon payment of a non-refundable public health permit fee.

D. A MEHKO Operator is required to notify Environmental Health and request an evaluation at least twenty (20) business days prior to any changes made to the menu or equipment that affect the originally proposed operational procedures following Environmental Health's initial approval. These changes may include, but are not limited to, the addition of potentially hazardous foods to the menu, as defined in the CA HSC, installation of new food preparation equipment, or the expansion to include support of up to two (2) CMFOs. The MEHKO Operator shall pay an evaluation fee based on the hourly rate set by the City. Upon notification and payment of the fee, the MEHKO Operator shall be subject to an evaluation to be completed by Environmental Health within twenty (20) business days to evaluate if the

menu or equipment change can be supported within the previously permitted kitchen. The approved operational procedure shall be available on site at all times.

E. No persons shall operate a MEHKO without a valid public health permit issued by Environmental Health, nor a Business License and accompanying accessory MEHKO permit with conditions as issued from Business Services.

F. Only one MEHKO may operate per residential dwelling unit.

G. MEHKO Health permits may be suspended or revoked as provided in the CA HSC. (ORD-26-0010 § 1, 2026)

5.35.050 Required Compliance.

A. Unless otherwise specified in the Chapter, a MEHKO shall comply with all applicable federal, state and local regulations, including but not limited to, the CA HSC, Long Beach Municipal Code, Fire Code, Building Code, and any Zoning of Land Use Ordinances. In addition, all permitted MEHKOs are subject to exemptions as set forth in the CA HSC. (ORD-26-0010 § 1, 2026)

5.35.060 Operating Standards.

A MEHKO home occupation shall be allowed to operate from a legally established residential dwelling unit as an accessory use to the primary residential use of the dwelling, provided that the use complies with all of the following performance standards:

A. A MEHKO home occupation business shall obtain the necessary permits and approvals from the City.

B. A MEHKO home occupation business is allowed one full time employee (for 40 hours per week) or multiple employees whose combined hours do not exceed 40 hours per week.

C. A MEHKO home occupation business may not offer alcohol sales or consumption.

D. The operator of the MEHKO shall only operate between the hours of 7 am and 10 pm, subject to any time restrictions imposed by an HOA, or conditions as applicable from any other City issued permit.

E. The operator of the MEHKO shall prevent loitering in all areas serving and adjacent to the use during and after hours of operation. The operator shall maintain the permitted areas free of trash and debris on a daily basis.

F. Food must be prepared, cooked, and served on the same day within the residence's kitchen.

G. A MEHKO home occupation business is limited to no more than 30 individual meals per day and no more than 90 individual meals per week or as specified in the CA HSC. A MEHKO may not serve individual items that are not considered a meal.

H. A MEHKO home occupation business may not have more than one hundred thousand dollars ($100,000) in verifiable gross annual sales, as adjusted annually for inflation based on the California Consumer Price Index. Records of all sales must be kept and made available upon request by City. Said records shall be made available to the City within 10 days of a written request.

I. Food may only be sold directly to consumers, not to any wholesaler, caterer, or retailer.

J. There shall be no queuing onsite beyond five (5) patrons. There shall be no queuing that extends onto the public right-of-way.

K. A MEHKO home occupation business may not act as a caterer and may not be permitted/registered as a Cottage Food Operation.

L. Food may not be served in the front yard of the home.

M. Food may be consumed onsite, available for customer pick up, or delivered by the MEHKO operator, family member, employee or household member. Third-party delivery services or applications are not allowed.

N. The MEHKO home occupation business shall not generate obnoxious odors, fumes, or emissions that are perceptible without instruments by a reasonable person at or beyond the property line of the site.

O. The MEHKO home occupation business shall comply with the City noise standards established in Chapter 8.80 of the L.B.M.C.

P. Best management practices shall be implemented, as determined by the Long Beach Utili-

ties Department, to prevent or reduce the discharge of fats, oils, and grease into the public sewer and storm drain systems, in accordance with Chapter 8.46 of the L.B.M.C.

Q. Advertisements for food that is prepared in a MEHKO shall include the name of the Health Department, permit number, and a statement that the food prepared is "Made in a Home Kitchen". Advertisements cannot include the use of the word catering or any other variation of the word.

R. The MEHKO home occupation business shall comply with all Health and Safety standards, certifications, training and permitting requirements of Environmental Health. (ORD-26-0010 § 1, 2026)

5.35.070 Food Preparation and Storage.

A. MEHKO food preparation, packaging, and handling shall be kept separate from other domestic activities, including but not limited to, family meal preparation, guest entertaining, or dishwashing.

B. All food storage for the MEHKO within the permitted area shall comply with the CA HSC. Sleeping quarters or second residential units on the same property are not allowed within the Permitted Area, unless otherwise indicated as set forth in the CA HSC.

C. Other than service animals, as defined in section 35.104 of Title 28 of the Code of Federal Regulation, all animals shall be excluded from the kitchen and dining areas during food service and preparation. (ORD-26-0010 § 1, 2026)

5.35.080 Expanded Food Service.

A. Food prepared in a MEHKO may be served from an approved Compact Mobile Food Operation (CMFO) operated by the same MEHKO permitholder pursuant to the CA HSC.

B. A MEHKO may serve as a commissary or mobile support unit for up to two (2) CMFOs owned by the same permitholder if an evaluation determines the MEHKO is capable of supporting the preparation and storage of the food being sold from the CMFO(s) and the storage and cleaning of the CMFO(s) pursuant to the CA HSC, unless storage is prohibited by City ordinance. The evaluation may be conducted as part of the initial application process. A permitted MEHKO that wishes to later expand to support up to two (2) CMFOs will incur a review fee and must obtain a CMFO health permit from Environmental Health.

C. A MEHKO operating in conjunction with an approved CMFO can be expanded to no more than eighty (80) individual meals per day and no more than two hundred (200) individual meals per week. Except as identified in Section B. above, a permitted MEHKO operating in conjunction with a CMFO shall not have more than one hundred fifty thousand dollars ($150,000.00) in verifiable gross annual sales, as adjusted annually for inflation based on the California Consumer Price Index. (ORD-26-0010 § 1, 2026)

5.35.090 Safety.

A. A properly charged and maintained minimum ten (10) BC-rated fire extinguisher to combat grease fires shall be readily accessible at all times.

B. A first aid kit shall be available and located in a convenient and accessible area at all times. (ORD-26-0010 § 1, 2026)

5.35.100 Signage Prohibited.

A. No signage or other outdoor display advertising the MEHKO is allowed anywhere on the property from which the MEHKO is operating. (ORD-26-0010 § 1, 2026)

5.35.110 Inspections.

A. The Environmental Health department shall conduct an initial inspection of a MEHKO upon the receipt of the complete application seeking approval for a public health permit.

B. A MEHKO is subject to one routine inspection per year as specified in the CA HSC.

C. Additional inspections conducted as a result of a complaint or emergency circumstances will be conducted in the manner set forth in the CA HSC.

D. If a MEHKO is found to be in violation of any of the requirements in this Chapter, other

chapters of the L.B.M.C., the CA HSC, or other local or state regulations and if additional inspections or complaint-based investigations are required to ensure compliance, the Departments may seek cost recovery. (ORD-26-0010 § 1, 2026)

5.35.120 Enforcement.

A. This Code is enacted pursuant to the applicable CA HSC provisions and the City's Municipal Code. The provisions herein establish enforcement mechanisms for all health, safety, housing, building, zoning, sanitation, environmental quality, fire prevention, business operations and nuisance abatement. In the event of conflict between this Enforcement provision and another provision of law, the more protective standard for public health and safety shall prevail.

1. It is unlawful for any person to violate or fail to comply with any provision of the CA HSC or applicable sections of the L.B.M.C. Each day a violation continues constitutes a separate offense. Violations may be deemed:

a. Infractions;

b. Misdemeanors; or

c. Civil violations subject to administrative penalties.

2. Conditions constituting a threat to public health, safety, or welfare may be declared a public nuisance subject to summary or judicial abatement.

3. The City may recover costs of enforcement, including inspection, investigation, abatement, and legal fees.

4. When a violation relates to property conditions, land use, nuisance conditions, parking, noise, waste disposal and protection of public infrastructure, the City may provide notice to both the MEHKO operator and the property owner. Failure of either party to correct the violation within the prescribed timeframe may result in enforcement action against one or both parties. (ORD-26-0010 § 1, 2026)

5.35.130 Implementation.

The Departments are responsible for the administration of this Chapter, which may include public education, public outreach, and promulgating policies, guidelines and rules consistent with the provisions of this Chapter and the City's Municipal Code. (ORD-26-0010 § 1, 2026)

5.35.140 Severability.

If any subsection, sentence, clause, or phrase of this Chapter is for any reason held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Chapter. (ORD-26-0010 § 1, 2026)

CHAPTER 5.36 FIREARMS DEALER

5.36.010 Permit—Required.

No person shall engage in, carry on or conduct the business of a firearms dealer without first having obtained a permit in accordance with this Chapter and complying with any and all requirements and regulations set forth in this Chapter. (Ord. C-6260 § 1 (part), 1986)

5.36.020 Permit application.

Each person, before obtaining a permit to carry on the business of selling firearms, shall make a written application on forms furnished by the Chief of Police, which shall be signed by the applicant. Every applicant must provide all documents required pursuant to Section 12071 of the California Penal Code. (Ord. C-7461 § 1, 1997: Ord. C-7423 § 7, 1996: Ord. C-6260 § 1 (part), 1986)

CHAPTER 5.37 MOBILE FOOD FACILITIES*

DIVISION 1. PURPOSE AND DEFINITIONS

5.37.010 Purpose.

The purpose of this Chapter is to establish a Mobile Food Facilities regulatory program. The

***Editor's note**—ORD-26-0011 § 1(Exh. A), adopted May 5, 2026, repealed the former Ch. 5.37 §§ 5.37.110—5.37.150, and enacted a new Ch. 5.37 as set out herein. The former Ch. 5.37 was entitled "Mobile Food Preparation Vehicles," and derived from ORD-11-0030, § 1, 2011.

provisions of this Chapter allow the City to encourage entrepreneurship and expand economic opportunities for mobile food facility operators, while protecting public health, safety, and welfare, and providing clear regulatory guidance for operators and enforcement staff. (ORD-26-0011 § 1(Exh. A), 2026)

5.37.020 Definitions.

If a term or phrase is not defined in this Chapter, or elsewhere in this Code, the most common dictionary definition is presumed to be correct. For the purposes of this Chapter, the following terms and phrases shall have the meanings respectively ascribed to them in this Section unless, from the particular context, it clearly appears that some other meaning is intended.

A. "Above ground structure" means any structure permanently affixed to a public sidewalk or other pedestrian path, including, but not limited to, public benches, bicycle racks, fences, fire hydrants, gates, mailboxes, parking meters, sign poles, street lights, traffic signal poles, tree wells, utility boxes, and utility poles.

B. "Dispense or dispensing" means selling, peddling, hawking, displaying for sale, soliciting the sale of, offering or exposing for sale or giving away.

C. "Enforcement Officer" shall mean the Director of Financial Management or designee, Manager of Environmental Health or designee, and/or the Long Beach Police Department staff. The Enforcement Officer shall have the authority to: (a) inspect vehicles and equipment, (b) issue citations, notices of violation, and orders to comply, (c) enter into compliance agreements, and (d) refer matters to the City Prosecutor's Office for potential misdemeanor prosecution.

D. "Food" means a raw, cooked, or processed edible substance, ice, beverage, an ingredient used or intended for use or for sale in whole or in part for human consumption, and chewing gum.

E. "Ice Cream Truck" means a mobile food facility used in conjunction with a commissary, which is equipped or primarily used for retail sales of ice cream, ice milk, soft serve, shaved ice, popsicles, sherbets, frozen yogurt, frozen dessert products, prepackaged candies, prepackaged snack foods, or non-alcoholic beverages.

F. "Merchandise" means any personal property, other than food, capable of manual delivery, displayed, held, or offered for retail sale by a vendor.

G. "Mixed Use Block" means a block that is zoned to allow for structures or premises to be occupied by or used by two (2) or more principal types of use.

H. "Mobile Food Facility" means any vehicle used in conjunction with a commissary or other permanent food facility which food is sold or distributed at retail, as defined by the California Health and Safety Code. For the purpose of this ordinance and subsequent revisions, if any, Mobile Food Facilities are distinct from non-motorized sidewalk vending, which is regulated by the California Safe Sidewalk Vending Act (SB 946) and the City's Sidewalk Vending Ordinance (LBMC Chapter 5.73).

I. "Mobile Food Facility Event" means a temporary, organized gathering on private commercial property at which one or more Mobile Food Facilities operate, and which is coordinated, promoted, or managed by a property owner, tenant, or event organizer.

J. "Operating" means the on-site, retail sale or service of food to consumers from a Mobile Food Facility, including any preparation or close out procedures performed within or outside of the Mobile Food Facility. A Mobile Food Facility operator is deemed to be operating whenever any person, by use of signs, circulars, cards or any other advertising media, including, but not limited to, social and print media, represents that they are doing business in the City; these facts may be used as evidence that such person or organization is doing business in the City. For purposes of this Chapter, if the operator and/or employees are physically in the Mobile Food Facility, the Mobile Food Facility is considered to be operating.

K. "Park" or "area zoned as a park" means any publicly owned natural and open areas for active and passive public use for recreational, cul-

tural and community service activities, including but not limited to, spaces dedicated or designated as parks in Table 35-2 or any successor table or amendments to said table as set forth in Chapter 21.35 of this Code.

L. "Private property" means any real property, parcel of land, or lot that has a separate certificate of title which is in private ownership or the subject of a lease or agreement with a person enabling its use for private purposes and includes any building or structure thereon. "Private property" includes real property owned by City that is leased to a private person.

M. "Residential" means any area zoned as a residential district in Title 21 of this Code.

N. "School" means any elementary school, middle school, junior high school, high school, senior school or continuation school, or any branch thereof.

O. "Street" means any City maintained right-of-way, owned or designated by the City, that is primarily intended for vehicular travel and open to public use. For purposes of this Chapter only, "street" includes all roadways and thoroughfares where motor vehicles operate, but excludes alleys, pedestrian only corridors, utility easements, promenades, bike paths, and similar areas not designed for regular vehicular traffic.

P. "Swap meet" means a location operated in accordance with Article 6 (commencing with Section 21660) of Chapter 9 of Division 8 of the California Business and Professions Code, and any regulations adopted pursuant to that article.

Q. "Temporary special permit" means a permit issued by the City for the temporary use of, or encroachment on, the sidewalk or other public area, including, but not limited to, an encroachment permit, special event permit, or temporary event permit, for purposes including, but not limited to, filming, parades, or outdoor concerts. (ORD-26-0011 § 1(Exh. A), 2026)

DIVISION 2. ADMINISTRATION

5.37.030 License and permits required.

A. No person shall engage in, carry on or conduct the business of a Mobile Food Facility operation without first having obtained:

1. A valid business license pursuant to Chapter 3.80 of this Code. Licensees shall pay the business license taxes established for such operations;

2. A valid Mobile Food Facility permit pursuant to the requirements of Title 5 of this Code. Every applicant and permittee shall pay the fees established for such applications and permits by resolution of the City Council;

3. A valid seller's permit applicable to food truck vending issued by the California Department of Tax and Fee Administration (CDTFA), to the extent required by law; and

4. A valid health permit from the City Department of Health and Human Services in accordance with the provisions of California Health and Safety Code.

B. Mobile Food Facility business and health permits are non-transferable. Any change in ownership or operation requires new permits. (ORD-26-0011 § 1(Exh. A), 2026)

5.37.040 Mobile Food Facility business permit - application and fees.

A. Each Mobile Food Facility operator is subject to and must comply with Chapter 5.04 of this Code related to the administration of City business permits.

B. An application for a Mobile Food Facility permit shall be filed in compliance with Chapter 5.04 of this Code, using a form approved by the City for that purpose, and which shall be certified by the applicant that to the best of the applicant's knowledge, the information contained on the form is true and that the applicant will operate the Mobile Food Facility in compliance with all applicable regulations, including all relevant Chapters of the Long Beach Municipal Code and the California State Health and Safety Code. Applications shall contain, at a minimum, the following information:

1. Name and current mailing address of the applicant;

2. Description of the merchandise or food offered for sale;

3. CDTFA seller's permit number, to the extent required by law; and

4. If the applicant is an agent of an individual, company, partnership, or corporation, the name and business address of the principal.

C. The applicant for a Mobile Food Facility business permit is required to provide a form of identification sufficient to establish the identity of the person responsible for the business. Acceptable forms of identification include a Social Security number, California driver's license or identification number, or an individual taxpayer identification number. Identification information is collected solely for the purpose of administering the permit and identifying the responsible party. This information is confidential, is not available to the public for inspection, and shall not be disclosed except as required to administer the permit and licensure program, to comply with a state law, or to comply with state or federal court order.

D. Payment of the Mobile Food Facility business license tax shall satisfy the fee for a Mobile Food Facility Business Permit under Section 5.04.040 of this Code.

E. A Mobile Food Facility business permit shall not be issued for operation unless the vendor first obtains a valid City-issued health permit. (ORD-26-0011 § 1(Exh. A), 2026)

5.37.050 Mobile Food Facility business permit - term and renewal.

A Mobile Food Facility business permit issued under the provisions of this Chapter shall be effective for a one (1) year period after issuance, and shall be automatically renewed every year upon payment of the required business license tax, provided the Director of Financial Management determines that the permittee has complied with the provisions of this Chapter and all applicable laws during the preceding permit term. (ORD-26-0011 § 1(Exh. A), 2026)

5.37.060 Health permit for Mobile Food Facilities.

Each Mobile Food Facility operation must obtain a City-issued health permit pursuant to Section 5.04.050 and Title 8 of this Code, and the California Health and Safety Code. Failure to maintain such permit shall be cause for suspension or revocation of a Mobile Food Facility business permit and business license. (ORD-26-0011 § 1(Exh. A), 2026)

5.37.070 Insurance.

A. Every Mobile Food Facility operator must maintain the following insurance requirements:

1. Maintain evidence of a commercial general liability or business owners' liability insurance with coverage at least as broad in scope as ISO form CG 00 01 10 93 or equivalent with the required coverage amounts of $1,000,000 per occurrence and $2,000,000 in general aggregate.

2. Commercial General Liability must include an Additional Insured Endorsement Form ISO CG 20 26, "Additional Insured - Designated Person/Organization/or equivalent". The form must add as an additional insured, in the space provided, "City of Long Beach and its officials, employees, and agents".

3. Workers' Compensation Coverage (WC): Proof of Workers' Compensation Coverage must also be provided as required by the Labor Code of California. Employer's liability insurance with minimum limits of $1,000,000 per accident or occupational illness. Policy must include a waiver of the insurer's right of subrogation against the City of Long Beach and its officials, employees, and agents.

4. Commercial Automobile Liability Insurance (AL): Commercial Automobile Liability Insurance with the coverage equivalent to ISO CA 00 01 06 92 with the required coverage amounts of $500,000 combined single limit (CSL) covering Symbol 1 ("any auto").

B. Every Mobile Food Facility operator shall maintain the requisite insurance in full force and effect when conducting Mobile Food Facility operations and shall file such insurance with the Director of Financial Management. Failure to maintain such insurance shall be cause for suspension or revocation of a Mobile Food Facility business permit.

C. Prior to the issuance or renewal of a Mobile Food Facility business permit, each Mobile Food Facility operator shall execute an indemnity agreement on a form provided by the City which provides that, by the acceptance or use of the Mobile Food Facility permit, the Mobile Food Facility operator shall indemnify, defend, protect and hold harmless the City, its Boards, Commissions, and their officials, employees, and agents from and against any and all liability, claims, demands, damage, loss, obligations, causes of action, proceedings, awards, fines, judgments, penalties, costs and expenses, arising or alleged to have arisen, in whole or in part, out of or in connection with the Mobile Food Facility operations (collectively "claims") and that the Mobile Food Facility operator shall notify the City of any claim within ten (10) days. (ORD-26-0011 § 1(Exh. A), 2026)

DIVISION 3. GENERAL OPERATING CONDITIONS AND LOCATIONS

5.37.080 General operating conditions.

A. All Mobile Food Facility operators must comply with all applicable provisions of the Long Beach Municipal Code, including, but not limited to:

1. Title 3, Title 5, Title 8, Title 21, and Title 22;

2. Chapter 8.63 - Polystyrene Food Packaging;

3. Chapter 8.80 - Noise;

4. Chapter 9.37 - Nuisance;

5. Section 16.08.420 - Disposal of refuse;

6. Section 16.12.260 - Sanitation (Pacific Ocean Areas); and

7. Section 16.16.140 - Park Playgrounds - Adults not accompanying children ages 12 and under prohibited.

B. All Mobile Food Facility operators must comply with and are subject to:

1. The California Health and Safety Code;

2. Applicable provisions in the Americans with Disability Act;

3. The California Vehicle Code.

C. Minors - Any minor(s) assisting with or engaged in Mobile Food Facility operations shall be accompanied by a Mobile Food Facility operator with a valid Mobile Food Facility permit. Any and all actions of the minor(s) related to Mobile Food Facility operations, including any violations committed by the minor(s), are attributable to the permitted Mobile Food Facility operator.

D. Set-up and equipment - all Mobile Food Facility operators shall abide by the following provisions:

1. Shall provide no more lighting than necessary for inside food preparation, menu illumination, and shielded, downward-facing customer lighting reasonably required for safe circulation and shall not create a nuisance or use high-intensity or flood-style lighting that creates glare onto adjacent properties, rights-of-way, or traffic.

2. If utilizing flashing lights, a Mobile Food Facility operator shall abide by the California Vehicle Code.

3. Shall not use red and blue flashing signs. Any other flashing sign used in vending must not be facing a highway or traffic.

4. Shall not set up tables, chairs, umbrellas, canopies or signage in the public right-of-way, unless expressly permitted through a City-issued special event permit, or if vending on private property with the property owner's consent and in compliance with all applicable State food safety and transportation regulations and local permitting requirements.

5. Shall not hang or affix any items to above ground structures, fences, gates, trees or onto public or private buildings.

6. Shall not use an electrical outlet or power source that is owned by the City or another person other than the Mobile Food Facility operator without prior written authorization.

E. Sound and Noise - Mobile Food Facility operators shall abide by the following provisions:

1. Shall not use amplified or non-amplified sound-making devices in conjunction with Mobile Food Facility operations, such as speakers, microphones, public address systems, bells, and chimes.

2. Notwithstanding subsection (1), ice cream truck operators may only use sound-making devices while the vehicle is in motion. Ice cream truck operators shall not use, play or employ any sound, outcry, amplifier, loudspeaker or any other instrument or device for the production of sound from an ice cream truck while the ice cream truck is stationary.

3. The City has the discretion to set reasonable restrictions in the business license terms and conditions on the type and use of any amplifier, loudspeaker, or any other instrument or device for the production of sound utilized on an ice cream truck in order to prevent a disturbance of the peace.

F. Sales and Operations - Mobile Food Facility operators shall abide by the following provisions:

1. Shall not organize customer queuing in a manner that interferes with or obstructs the free passage of pedestrians.

2. Shall not dispense food to customers in the street. Customers must receive food on the sidewalk if the vehicle is parked in the right-of-way.

i. If the Mobile Food Facility is parked in a diagonal/angled parking space in the street, the adjacent parking space must be available as a designated customer area if needed to prevent customers from standing in the active travel lane of a street, with all applicable parking fees paid on all utilized parking spaces. A temporary barrier shall be provided to buffer the active parking areas from any customer queuing areas. The customer queue should be directed toward the sidewalk, not into the roadway. No more than two diagonal/angled parking spots should be utilized for a single Mobile Food Facility vending operation.

3. Shall not rent merchandise to customers.

4. Shall not display merchandise or food that is not available for immediate sale.

5. Shall not vend food or merchandise that requires verification of a minimum age for purchase, such as alcoholic beverages (as defined in LBMC Section 9.02.020), tobacco, tobacco products, cannabis, or firearms.

6. Shall not vend non-food merchandise, except for small, temporary, or promotional items that are directly related to the business and secondary to the primary sale of food.

G. Maintenance and Environmental Safety - all Mobile Food Facility operators shall abide by the following provisions:

1. Pick up, remove, and dispose of all trash or refuse which consists of materials originally dispensed from the truck within a 50-foot radius of the truck.

2. Provide litter receptacles of sufficient capacity, to be changed as necessary, and which is clearly marked with a sign requesting its use by patrons.

3. Not empty their trash into public or City trash receptacles.

4. Not dispose of items or materials onto or into the curbs, gutters, streets, drains, storm drain system, or onto any other public or private property. Items include, but are not limited to, food debris, hot coals, ashes, grease, and any water or rinse residue used for their operations, such as cooler water, ice, or food preparation water.

5. Not allow grease, oil, or other food-related residues to accumulate or stain public streets, sidewalks, or parking areas. Operators are responsible for cleaning any grease spills or stains resulting from their operations and may be subject to fines or cleanup fees if the City is required to perform or coordinate the cleaning.

H. Interference with Municipal Services - all Mobile Food Facility operators shall abide by the following provisions:

1. Shall not adversely affect the City's ability to perform municipal functions or furnish City services.

2. Shall not interfere with the performance of duties by police officers, firefighters, lifeguards, emergency medical personnel, or other City employees acting in the line of duty. (ORD-26-0011 § 1(Exh. A), 2026)

5.37.090 Public Right of Way and Park Parking Lots - general operating conditions and locations.

A. Business License Parking Benefit - Mobile Food Facility operators that possess a City of

Long Beach Mobile Food Facility business license and permit and are in good standing without any outstanding fees or fines may:

1. Extend the posted parking time limits in metered stalls by up to twice the designated duration, with a cap of 4 hours provided that the meter is paid for the entire period of occupancy. For meters in Downtown Dining and Entertainment District as defined by Chapter 5.72.210, Mobile Food Facility operators may utilize a metered stall for up to 8 hours provided that the meter is paid for the entire period of occupancy.

2. Vend while occupying up to two on-street stalled or marked parking spaces, of which all parking fees must be paid.

B. Permitted Locations for Operation.

1. Mobile Food Facility operators may vend on any public right-of-way that meets the definition of a Street as defined in this Chapter.

2. Mobile Food Facility operators may vend in available parking spots in the Shoreline Aquatic Park Surface Lot at 212 Golden Shore on a first-come first-serve basis, if adhering to all parking, ordinance, and safety regulations and during times when the lot is not restricted for special events.

3. Mobile Food Facility operators may vend in select City park parking lots as described in section 5.37.090(C).

4. Mobile Food Facility operators may vend in the appropriate dedicated portions of parking along Ocean Boulevard as described in section 5.37.090(D)(3).

C. Park Parking Lot Program for Mobile Food Facilities - Mobile Food Facility operators may participate in a Mobile Food Facility Park Parking Lot Program.

1. Under this program, select parks will have designated spots for up to five Mobile Food Facility operators specifically for Mobile Food Facility operations, with the exception of Granada Beach, which shall only have up to two designated spots. These designated spaces may be used by permitted operators on a first-come, first-serve basis during permitted vending hours.

2. Mobile Food Facility operators are prohibited from vending in any other parking spaces within the park parking lot or from reserving designated Mobile Food Facility spaces by parking their vehicle(s) outside of operating hours.

3. Access to designated Mobile Food Facility spaces may be temporarily restricted during City sponsored special events or as determined by the City for operational needs.

4. The City parks participating in this program and the number of designated spots at each participating park parking lot shall be designated by the Director of Parks, Recreation and Marine or his or her designee, who may also choose to pause or stop the program depending on safety or capacity circumstances. The City shall publish and maintain the list of designated parks and spots on a public facing website.

D. Exclusive Parking for Mobile Food Facilities on Public Rights of Way.

1. Parking spaces exclusively for Mobile Food Facilities on public rights of way shall be set forth according to Chapter 10.24.060 "Exclusive Parking for Mobile Food Facilities on Public Rights of Way".

E. Event Specific and Concessionaire Restrictions.

1. Mobile Food Facility operators may not vend within 500 feet of any concessionaire that has signed an agreement for concessions with the City that exclusively permits the sale of food or merchandise by the concessionaire.

2. For permitted swap meets, permitted certified farmers' markets, and areas designated for a temporary special permit (collectively "events") where the Mobile Food Facility operator is not contracted to vend, the following also applies:

i. For events with less than five thousand (5,000) attendees and where it is a limited venue and access and egress is not a factor, Mobile Food Facility operators may not vend within two hundred fifty (250) feet of the event.

ii. For all other events, Mobile Food Facility operators may not vend within five hundred (500) feet of the event.

iii. The vending restrictions described above apply as follows: (1) For permitted swap meets or permitted certified farmers' markets during the

limited operating hours of the certified farmer's market or swap meet, (2) for an area designated for a temporary special permit: during the limited duration of the temporary special use permit.

iv. For areas designated for a temporary special permit, when applicable, Mobile Food Facility operators specifically permitted to operate in the area are granted the same notice, business interruption mitigation, or other right provided to affected businesses or property owners under the City's temporary special permit, rules, and regulations.

v. The City may impose additional restrictions to preserve the ingress and egress of Special Event related traffic.

F. Operating Hours - Mobile Food Facility operators may operate in the public right-of-way only during the following hours, based on the location of vending activity:

1. Non-residential/mixed use blocks - operations may occur between 7:00 a.m. and 10:00 p.m. with the exception of the Downtown Dining and Entertainment District where operations may occur between 7:00 a.m. and 11:30 p.m.

2. Residential blocks - operations may occur between 9:00 a.m. and 8:00 p.m.

3. School areas - Notwithstanding the aforementioned operating hours, no Mobile Food Facility operator may vend within one block of any school grounds from Monday through Friday, between the hours of 7:00 a.m. and 5:00 p.m. of said days, unless expressly permitted or invited by the school.

4. Park parking lots - Mobile Food Facility operations in approved City park parking lots, as part of the Mobile Food Facility Park Parking Pilot Program, may occur during official park operating hours, but in no case later than 10:00 p.m.

G. Pedestrian Path of Travel/Access - Mobile Food Facility operators shall abide by the following provisions:

1. Shall provide for a minimum five-foot uncovered pedestrian path of travel that must be available at all times, and eight (8) feet in areas identified as High Volume or Very High-Volume Pedestrian Zones as designated by the City's Traffic Engineer or Designee.

2. Shall operate in a way which will not obstruct or interfere with the free flow of pedestrian path of travel or vehicular traffic, including but not limited to, access to or from any business, public building, or dwelling unit.

H. Traffic Safety and Visibility - Mobile Food Facility operators shall abide by the following provisions:

1. Shall not operate in any location that obstructs traffic signals or regulatory signs.

2. Shall not operate within Vehicle Height Restricted Areas, which have been so posted with appropriate signs by the City Traffic Engineer, if the MFF exceeds the designated height limit.

3. Shall not operate within a marked bus zone/stop and Metro stop.

4. Shall not operate within ten (10) feet in front of or ten feet behind a marked bus zone or Metro stop as measured linearly along the curb from the sign marking the bus zone or Metro stop.

5. Shall not operate within a curb zone with yellow, white, red or blue markings, or valet parking zones.

6. Shall not operate within a green curb zone during restricted times/hours established by LBMC section 10.26.010.

7. Shall not operate within 15 feet of any fire hydrant, fire lane, Fire Department Connection (FDC), or Fire backflow preventer.

8. Shall not operate within 20 feet of a driveway, alley approach, intersection, marked crosswalk, curb cutout /ADA Curb Ramp or other access ramp designed for individuals with disabilities, fire escape or emergency exit.

9. Shall not operate within 50 feet of any railroad crossing.

10. Shall not operate within 100 feet of the vehicle entrance of any fire station, police department, hospital, lifeguard tower, lifeguard headquarters, or any other emergency response structure or path.

11. Shall not operate on any slope greater than five percent or where wheels must be cramped to the curb.

12. Shall not operate within 25 feet of any beach access point or pier.

13. Shall not obstruct the free and easy access to and departure from any portion of any public landing, pier or wharf within the marinas.

14. Shall not operate or remain parked overnight on any public street or parking lot between 2 a.m. and 6 a.m. per California Vehicle Code. (ORD-26-0011 § 1(Exh. A), 2026)

5.37.100 Mobile Food Facilities on Private Property—Long-term Use.

A. Mobile Food Facility operations may operate on private property according to the provisions outlined under Title 21 and Title 22 of the LBMC. (ORD-26-0011 § 1(Exh. A), 2026)

5.37.110 Mobile Food Facilities on Private Property—Short-term Temporary Events.

A. Mobile Food Facility events on private commercial property require a Mobile Food Facility Event Permit issued by the Director of Financial Management or his/her designee, pursuant to the provisions of this Section. If the intended event has entertainment included, then an Occasional Event Permit is required.

B. A Mobile Food Facility Event Permit shall not be issued for any premises or location for more than three consecutive days and issued at least 15 calendar days apart.

C. Applications for Mobile Food Facility Event Permits will be accepted for consideration only if the following requirements have been met. Failure to meet any of these requirements will render the application non-responsive. Non-responsive applications will not be processed:

1. The application shall be submitted no more than thirty (30) business days and no less than ten (10) business days prior to the event.

2. The applicant shall pay the filing fee, as established by resolution of the City Council, at the time the application is filed with the City.

3. All parties to the application must be at least eighteen (18) years of age.

4. The application must be accompanied by lease/rental agreements, security contracts, and any other supporting documentation as required by the Director of Financial Management.

D. A Mobile Food Facility Event Permit shall be issued by the Director of Financial Management only after he/she has determined the following:

1. The peace and quiet of the neighborhood will not be disturbed.

2. Adequate security, as determined by the Director of Financial Management, has been afforded.

a. Where professional security services have been required, a written contract must be obtained and submitted to the Director of Financial Management no less than five (5) days prior to the scheduled event.

b. The contract must contain such information as the Director of Financial Management may require, including, but not limited to:

i. The event location;

ii. The date and specific hours of the event;

iii. The number of guards assigned; and

iv. A statement that the guards will be uniformed or non-uniformed and armed or unarmed.

c. The security contract must be signed by the permit applicant and by a duly authorized representative of a private patrol operator, as licensed by the State of California Department of Consumer Affairs, who is in possession of a Long Beach City business license, issued pursuant to Chapter 3.80 of the Long Beach Municipal Code.

3. That all prerequisite requirements of other agencies or departments have been met.

4. In making a determination of whether or not to issue a Mobile Food Facility Event Permit, the Director of Financial Management may inspect the premises and site at which the event is to take place. The Director of Financial Management may also consider prior complaints, police service calls and other relevant information related to prior events on the premises.

E. A Mobile Food Facility Event Permit for a nonprofit fundraising event shall not be approved unless and until a charitable solicitation permit has been obtained pursuant to Chapter 5.28 of the Long Beach Municipal Code.

F. Where a promoter has been engaged to market, advertise or conduct the event, said promoter must obtain a City business license prior to approval of the occasional event permit. If the event is a charitable event, then the promoter must also comply with all applicable requirements of Chapter 5.28 of the Long Beach Municipal Code.

G. As a condition of Mobile Food Facility Event Permit issuance, the permittee agrees to reimburse the City:

1. Whenever excessive police services, as determined by the Director of Financial Management, are required as the result of any incident or nuisance arising out of or in connection with the permitted event; and

2. For costs associated with the removal of signs posted in connection with the event, whether or not the signs had been permitted by any City department, as outlined in Chapter 21.44 of the LBMC.

H. In no event shall the issuance of a Mobile Food Facility Event Permit by the Director of Financial Management be construed as permission to disturb the peace. Permits may be denied or revoked by the City if it is determined that the event sponsor or any agent, employee or associate of any such event organizer has willfully made any false or misleading statement in an application or has not fully complied with the requirements of this Chapter or has violated any of the provisions of this Chapter or the provisions of any other applicable law, rule or regulation. (ORD-26-0011 § 1(Exh. A), 2026)

DIVISION 4. ENFORCEMENT AND PENALTIES

5.37.120 Enforcement and Penalties.

Violations of this Chapter are enforceable using the administrative citation procedures set forth in Chapter 9.65 of this Code. Fines for violations of this Chapter shall be assessed pursuant to Section 5.08. If a Mobile Food Facility operator is found to be in violation of any of the requirements in this Chapter, other chapters of the LBMC, or other local, state or federal regulations, and if additional inspections or continued investigations are required to gain compliance, the City may seek cost recovery for all additional enforcement activity and associated expenses. (ORD-26-0011 § 1(Exh. A), 2026)

5.37.130 Mobile Food Facility business permit - investigation.

Every Mobile Food Facility operator shall be subject to inspections to ensure compliance with this Code and any other applicable law. This includes provisions of Chapter 5.08 intending for inspectors to be authorized to enter the Mobile Food Facility during operating times, as defined in this Chapter. (ORD-26-0011 § 1(Exh. A), 2026)

5.37.140 Mobile Food Facility business permit - cancellations, suspensions, revocations, denials, and appeals.

A. The cancellation, suspension, revocation, denial and appeal of a Mobile Food Facility business permit shall be governed by the provisions of Chapter 5.06 of this Code.

B. No person shall conduct any Mobile Food Facility operations during the pendency of a related business permit application, during the time such a permit has been suspended, or at any time after such a permit has been denied, cancelled, or revoked, unless the permit is later granted or reinstated.

C. In the event the Mobile Food Facility license and/or permit is canceled, suspended, denied or revoked, any associated business permit and/or license is simultaneously and automatically deemed canceled, suspended, denied or revoked. (ORD-26-0011 § 1(Exh. A), 2026)

5.37.150 Severability.

If any provision of this Chapter, or the application thereof to any person or circumstance, is held invalid, that invalidity shall not affect any other provision or application of this Chapter that

can be given effect without the invalid provision or application; and to this end, the provisions or applications of this Chapter are severable. (ORD-26-0011 § 1(Exh. A), 2026)

CHAPTER 5.38 FORTUNETELLING *

5.38.010 Defined.

"Fortunetelling" means a commercial enterprise involving the foretelling of the future in exchange for financial or other valuable consideration. Fortunetelling includes the use of astrology, augury, card or tea reading, cartomancy, clairvoyance, clairaudience, crystal gazing, divination, mediumship, necromancy, palmistry, psychometry, phrenology, prophecy, spiritual reading or any similar means. Fortunetelling does not include forecasting based on historical trends or patterns, religious or political dogma, or any of the previously listed arts when presented in an assembly of people who purchase tickets or means in exchange for the presentation at a site licensed for entertainment uses pursuant to Chapter 5.72 of this Code. (ORD-13-0025, § 1, 2013)

CHAPTER 5.40 GARAGE SALES

5.40.010 Definitions.

"Applicant" means the person who makes application for a garage sale or estate sale permit. Each person who signs an application for a block sale permit is considered an applicant.

"Estate sale" means a garage sale at which the personal property of any deceased person by that person's representative, not otherwise prohibited by this Code, or any other law, is offered for sale, where such personal property is set out for public display and sale in any open garage, yard, or patio of any building or premises which contains one (1) or more dwelling units.

"Garage sale" means the sale of or offering for sale the personal property of any person not otherwise prohibited by this Code, where such personal property is set out for public display and sale in any open garage, yard, or patio of any building or premises which contains one (1) or more dwelling units. "Garage sale" includes estate sale and multifamily sale.

"Multifamily sale" means a garage sale conducted at one (1) or more single-family residences, normally on the same street block or on adjacent intersecting street blocks, or a garage sale conducted at one (1) or more units of a multifamily dwelling, sharing the same street address.

***Editor's note—**ORD-13-0025, §§ 1, 7, adopted Dec. 3, 2013, repealed the former Ch. 5.38, §§ 5.38.010—5.38.140, and enacted a new Ch. 5.38 as set out herein. The former Ch. 5.38 pertained to similar subject matter and derived from Ord. C-6260 § 1 (part), 1986; and Ord. C-7934 §§ 3, 4, 2004.

"Personal property" means the property of the person residing at the address where the garage sale is being conducted. "Personal property" does not include property that has been consigned to, or acquired by, such person for the purpose of resale. (Ord. C-7634 § 1, 1999: Ord. C-7461 § 9, 1997: Ord. C-6260 § 1 (part), 1986)

5.40.015 Only personal property to be sold.

Except for a person conducting an "estate sale" as defined in this Chapter, no person shall offer for sale at a garage sale any property that is not the personal property of the permit applicant. (Ord. C-7634 § 6, 1999)

5.40.020 Permit required.

Every person engaged in operating a garage sale shall obtain a permit prior to commencement of the sale. For each permit issued, the applicant shall pay a fee as prescribed by resolution adopted by the City Council. The permit fee shall be used to finance the cost of ensuring compliance with this Chapter. (Ord. C-7876 § 1, 2003: Ord. C-7634 § 2, 1999: Ord. C-7461 § 9, 1997: Ord. C-6260 § 1 (part), 1986)

5.40.030 Frequency and term of permit.

A. Permits shall be issued according to street address. Except as authorized in Section 5.40.080, permit applicants shall provide proof of residence at the address for which the permit is sought. For single-family dwellings, no more than two (2) permits shall be issued to any one (1) street address in any one (1) calendar year for any type of garage sale. For multifamily dwellings, no more than one (1) permit shall be issued per street address per quarter, not to exceed four (4) within any one (1) calendar year.

B. Each permit shall be for no more than three (3) consecutive days. In the event of inclement weather on any two (2) of those three (3) days, the applicant may apply within one (1) week of the first date originally scheduled for the sale for a no cost replacement permit. The replacement permit will not be counted toward the annual limit for that street address. (Ord. C-7634 § 3, 1999: Ord. C-7461 § 9, 1997: Ord. C-6260 § 1 (part), 1986)

5.40.040 Impounded property.

Should property offered for sale at a garage sale be impounded by law enforcement personnel to determine ownership and that property subsequently be returned to the applicant, the applicant may apply for a replacement permit to dispose of that property. The replacement permit will not count toward the annual limit for the applicant's street address. (Ord. C-7634 § 4, 1999: Ord. C-7461 § 9, 1997: Ord. C-6260 § 1 (part), 1986)

5.40.050 Permit—Nontransferable.

A permit issued under the provisions of this Chapter shall be nontransferable. (Ord. C-7461 § 9, 1997: Ord. C-6260 § 1 (part), 1986)

5.40.060 Display of permit.

The permit required under this Chapter shall be conspicuously displayed on the premises where the garage sale is conducted. (Ord. C-7461 § 9, 1997: Ord. C-6260 § 1 (part), 1986)

5.40.065 Goods on sidewalk prohibited.

Permittees shall at all times comply with the provisions of Chapter 14.04 of this Code relating to the obstruction of streets and sidewalks. Permittee shall not use any public sidewalk, public street, or that space between the public sidewalk and curb commonly known as parkway, or any space above any portion thereof, for displaying for sale, or for any other purpose, any goods, articles, or other personal property. (ORD-07-0032 § 1, 2007)

5.40.070 Hours of garage sales.

Garage sales may only operate between eight o'clock (8:00) a.m. and three o'clock (3:00) p.m. (Ord. C-7634 § 5, 1999: Ord. C-7461 § 9, 1997: Ord. C-6260 § 1 (part), 1986)

5.40.075 Signs.

Each garage sale may be advertised by one (1) sign, located on private property at the street ad-

dress where the sale is conducted, not more than four feet (4') in height nor more than six feet (6') in area. Such sign must be removed at the end of the sale. No sign may be located on or fastened to any public property or any part of the public right-of-way. (Ord. C-7634 § 7, 1999)

5.40.080 Estate sales.

Estate sales, as defined in this Chapter, shall be subject to all of the provisions of this Chapter concerning garage sales, except that the person serving as the representative of the deceased person may apply for a permit and may conduct the sale at either the residence of the deceased or at the residence of the representative, and may sell the personal property of the deceased as otherwise permitted by State law. (Ord. C-7634 § 8, 1999)

5.40.085 Multifamily sales.

Multifamily sales, as defined in this Chapter, shall be subject to all of the provisions of this Chapter, except that the multifamily sale permit application shall include a list of all participating addresses and shall contain the signature of a resident of each of those addresses. Participating in a multifamily sale shall constitute one (1) of the two (2) garage sales permitted at each street address during each calendar year for single-family dwellings, and as one (1) of the one (1) per quarter, not to exceed four (4) per calendar year per street address, for multifamily dwellings. (Ord. C-7634 § 9, 1999)

5.40.090 Infraction—Misdemeanor.

The first violation of any provision of this Chapter shall be an infraction as provided in section 17 of the California Penal Code, and the penalty for the first such infraction shall be two hundred dollars ($200.00). The second violation of any provision of this Chapter shall also be an infraction, and the penalty for such violation shall be four hundred dollars ($400.00). The third and subsequent incident of violation of any provision of this Chapter shall be a misdemeanor, as defined in section 17 of the California Penal Code. (Ord. C-7634 § 10, 1999)

CHAPTER 5.42 GASOLINE SALES

5.42.010 Price signs required.

A. Every person, firm, partnership, association, trustee or corporation which owns, operates, manages, leases or rents a gasoline service station or other facility offering for sale, selling or otherwise dispensing gasoline or other motor vehicle fuel to the public from such a facility abutting or adjacent to a street or highway shall post or cause to be posted or displayed and maintained at said premises at least one (1) sign, banner or other advertising medium which is clearly visible from all traffic lanes in each direction on such street or highway.

Each said sign, banner or other advertising medium shall be readable from said traffic lanes and shall indicate thereon the actual price per gallon, including all taxes, at which each grade of gasoline or other motor vehicle fuel is currently being offered for sale, sold or otherwise dispensed, if at all, at said facility on said date. Lettering shall be not less than six inches (6") in height and of a uniform color.

B. No person, firm, partnership, association, trustee or corporation which owns, operates, manages, leases or rents a gasoline service station or other facility offering for sale, selling or otherwise dispensing gasoline or other motor vehicle fuel to the public shall advertise, either in connection with any signs, banners or other advertising medium utilized to satisfy the requirements of this Section or otherwise, the price of any grade of gasoline or other motor vehicle fuel which is not immediately available to be sold or dispensed to the public at said premises.

C. Each sign, banner or other advertising medium posted, displayed or maintained pursuant to requirements of this Section shall be consistent with the provisions of Article 12 of Chapter 14 of Division 5 (Sections 13530 et seq.) of the Business and Professions Code as well as Section 21.44.110 of the Long Beach Municipal Code. (Ord. C-7423 § 18, 1996: Ord. C-6260 § 1 (part), 1986)

CHAPTER 5.44
GOING-OUT-OF-BUSINESS SALES

5.44.010 Definitions.

For the purposes of this Chapter, the following words and phrases shall have the meanings set forth as follows:

A. "Going-out-of-business sale" means the advertising or otherwise using any word or phrase which conveys to the public the idea that a sale is for the purpose of retiring from or closing a business. (Ord. C-6260 § 1 (part), 1986)

5.44.020 Registration—Required.

No person shall represent or hold out that any sale of goods is an insurance, bankruptcy, mortgage, insolvency, assignee's, executor's, administrator's, receiver's, trustee's, creditor's, forced, liquidation, removal or closing-out sale, or a sale of goods damaged by fire, smoke, water, or otherwise, or use any other word or phrase which would reasonably convey to the public the belief that said person was retiring from or closing his/her business in the City, unless he/she had first registered with the Director of Financial Management to do so. (Ord. C-7423 § 8, 1996: Ord. C-6260 § 1 (part), 1986)

5.44.030 Exception—Court sale.

This Chapter shall not apply to public or court officers or to any person acting under the direction of State or Federal courts in the course of their official duties. (Ord. C-6260 § 1 (part), 1986)

5.44.040 Supplemental permit—Required.

A. A going-out-of-business sale as defined in Section 5.44.010 shall be concluded within three (3) months subsequent to registration unless a supplemental permit has been approved and issued by the Director of Financial Management.

B. Any person who has registered to manage, conduct, or carry on a sale, as required by Section 5.44.020, must make written application to the Director of Financial Management when it appears that all of the goods in the original inventory will not be sold during the three (3) months provided. Such supplemental permit may be issued at the reasonable discretion of the Director of Financial Management upon a showing by the applicant of compliance with the provisions of this Chapter and upon the payment of a permit fee established by resolution of the City Council adopted pursuant to Section 5.04.040. (Ord. C-7423 § 9, 1996: Ord. C-6260 § 1 (part), 1986)

5.44.045 Supplemental permit—Application.

A. The application shall be signed and sworn to by the applicant and shall state all the facts in regard to the sale, the need to extend the sale and the actual length of time required to conclude the sale, which period shall not exceed three (3) months. The applicant shall also furnish a sworn statement in the application that the merchandise which he/she proposes to sell is a bona fide part of his/her stock in trade and that the same has not been secured, purchased, or brought into the applicant's place of business for or in anticipation of the sale.

B. The Director of Financial Management may additionally require that the application be accompanied by an inventory of remaining merchandise, which inventory shall show the actual purchase price, the names of persons from whom the goods were obtained, the date of purchase, the date of delivery of the goods, and all details necessary to fully identify the goods to be sold.

C. The applicant shall also state whether or not the goods to be sold were purchased at a former sale conducted in compliance with Section 5.44.020. No permit shall be issued to any person if it appears that the stock of goods was purchased at a former sale, as set forth in this Section, less than six (6) months prior to the date of the application.

D. When the applicant has complied with the requirements of this Chapter, the Director of Financial Management may, in his/her sound discretion, issue the permit and shall endorse thereon the date the permit will expire. Once issued, a supplemental permit shall continue in effect only so long as the permit fee is paid and the permittee complies with the provisions of this Chapter and all other provisions of law.

E. No person shall make a false statement in such application. (Ord. C-7423 § 30, 1996)

5.44.055 Permit limitations.

A. A permit issued under the provisions of this Chapter shall be valid only for the inventoried goods.

B. A permit issued under the provisions of this Chapter shall not be transferable. (Ord. C-6260 § 1 (part), 1986)

5.44.070 Adding to inventory prohibited.

No person having a permit under this Chapter shall add any goods to the inventoried stock and no goods shall be sold except that included in the original inventory. (Ord. C-6260 § 1 (part), 1986)

5.44.080 Going out of business sales.

No person, whether as an owner, relative of an owner, representative or manager thereof, shall directly or indirectly engage in a similar business in the City at any time within one (1) year from the date of termination of a going out of business sale as specified in Section 5.44.020. (Ord. C-6260 § 1 (part), 1986)

CHAPTER 5.46 HANDBILLS AND ADVERTISING*

5.46.010 Definitions.

The following words and phrases in this Chapter shall have the meaning attached to them in this Section unless otherwise clearly apparent from the context:

A. "Pamphlet" is any booklet, card, circular, dodger, handbill, newspaper, or other medium of similar nature, excluding, however, any newspaper eligible for entry as second class matter under the provisions of the United States Post Office regulations of March 3, 1879, and other regulations and statutes of the United States.

B. "Private property" is any parcel of real property in the City, including any improvements thereon, and not dedicated to use by the public. (ORD-05-0030 § 1, 2005)

5.46.020 Pamphlet distribution hours.

No person shall distribute any pamphlets in or upon private property in the City between seven o'clock (7:00) p.m. and eight o'clock (8:00) a.m. (ORD-05-0030 § 1, 2005)

5.46.030 Distribution on private property restricted.

No person shall distribute any advertising matter in or upon private property when:

A. It is apparent that the property is unoccupied; or

B. It is apparent that a previous day's distribution of pamphlets, regardless by whom distributed, has not been removed. (ORD-05-0030 § 1, 2005)

5.46.040 Manner of distribution.

Subject to the provisions of Section 5.46.030, no person shall distribute in or upon any private property any pamphlets except in the following manner:

A. By placing the same in a receptacle, clip, or other device designed or intended to receive pamphlets, when such receptacle, clip, or other device has been conspicuously placed near the front door or front entrance or near the mailbox of any private property; or

B. If no such receptacle, clip, or other device has been placed as provided in this Section, then by handing the pamphlets to an occupant of the property, or placing the same upon the porch or vestibule of a house or building on the private property, provided that, in the latter case, the pamphlet is wrapped, tied, folded, or otherwise so prepared or placed that it will not be blown loose by the wind. (ORD-05-0030 § 1, 2005)

5.46.050 Business license required.

No person shall cause the distribution of any pamphlet without clearly printing the business license number of the person or entity which caused the pamphlet to be distributed, unless such person

*__Note__—Prior ordinance history: Ord. C-6260 § 1 (part), 1986; Ord. C-6325 § 18, 1986; Ord. C-7423 § 19, 1996.

or entity is not otherwise required to possess a business license under this Code. (ORD-05-0030 § 1, 2005)

5.46.060 Public posting prohibited.

No person shall post notices on public property without a permit from the Public Works Department. (ORD-14-0010, § 1, 2014; ORD-05-0030 § 1, 2005)

5.46.070 False advertising prohibited.

No person shall sell, furnish, perform or in any way dispose of real or personal property, services, professional or otherwise, or anything of any nature whatsoever, directly or indirectly to the public, or induce the public in any manner to enter into any obligation relating thereto, or acquire title thereto, or any interest therein, by means of publishing, circulating, or causing to be made, published or circulated before the public in the City, in any newspaper, magazine, book, pamphlet, circular, letter, notice, handbill, poster, or other publication, or on any billboard, sign, card, label, or other advertising medium, including any electric sign, window sign, showcase, or window display, or any other advertising device, or by public outcry, or proclamation, or in any other manner or means whatever, which advertising contains any statement representation, or assertion concerning such real or personal property, service, or anything so offered to the public, or concerning any circumstances or matter of fact connected in any way directly or indirectly with the proposed sale, performance or disposition thereof, which statement, representation or assertion is false or untrue in any respect, or which is deceptive or misleading; provided, however, that this Section shall not apply to any publisher of a newspaper, magazine, or other publication who publishes said advertisement in good faith without knowledge of its false, deceptive or misleading character. (ORD-05-0030 § 1, 2005)

CHAPTER 5.47 HORSE-DRAWN CARRIAGES

5.47.010 Definitions.

Unless it appears from the context that a different meaning is intended, the following words, as used in this Chapter, shall have the following meanings:

A. "City Manager" means the City Manager of the City of Long Beach, or his/her designated representative.

B. "Driver" means and includes every person who drives, operates, controls or is in charge of any "horse-drawn carriage" as defined by this Chapter.

C. "Horse-drawn carriage" means a device upon which any person may ride, propelled by horsepower, constructed in such a manner, and authorized pursuant to this Chapter, to engage in the business of carrying passengers for hire along a route of travel.

D. "Horse-drawn carriage permit" or "permit" means the permit issued by the Bureau of Commercial Services authorizing operation of a horse-drawn carriage pursuant to the provisions of this Chapter.

E. "Permittee" means any person to whom a horse-drawn carriage permit is issued pursuant to the provisions of this Chapter.

F. "Person" means a natural person, his heirs, executors, administrators or assigns, and also includes a firm, partnership or corporation, its or their successors or assigns or the agent of any of the aforesaid. (Ord. C-7091 § 1 (part), 1993)

5.47.020 Permit—Required.

No person shall drive, operate or cause to be operated, nor shall any person employ, permit or allow another to drive, operate or cause to be operated by way of lease, contract, agreement permit, license or understanding, a horse-drawn carriage within the City without a permit first having been obtained as provided in this Chapter. (Ord. C-7091 § 1 (part), 1993)

5.47.030 Permit—Application.

A. Any person desiring a permit to operate a horse-drawn carriage as provided by this Chapter shall file an application therefor with the Bureau of Commercial Services. Such application shall be verified by oath of the applicant, if applicant is a corporation, partnership, association or unincorporated company, and which application shall set forth the name and address of the applicant, if a natural person; or if a corporation, its name, date and place of incorporation, address of its principal place of business and the names of all its officers together with their respective addresses; or if a partnership, association or unincorporated company, then the names of the partners comprising the partnership, association or company, together with their respective ages and addresses. The application shall also state the trade name or style, if any, under which the applicant proposes to operate, full information pertaining to operations and the manner in which such proposed operations are to be conducted, the type, model, capacity and condition of the horse-drawn carriage proposed to be operated, and such other or additional information as the Bureau of Commercial Services or the City Manager may require.

B. The Bureau of Commercial Services shall, upon receipt of the application, make full and complete inquiry into the facts set forth therein and shall either grant or deny a permit upon the proposed terms, or upon terms other than those proposed. The permit shall be for a specified number of vehicles and horses which may be increased only by action of the Bureau of Commercial Services. Such permit may, at the pleasure of the Bureau of Commercial Services, be for a prescribed period; provided, that in either event, the permit shall contain a clause authorizing its revocation or suspension in accordance with the ordinances of the City either in effect at the date of granting the permit or thereafter adopted. When issued, the permit shall constitute evidence of compliance with the terms of this Chapter and shall authorize the permittee to operate a horse-drawn carriage under the conditions there specified; subject, however, to the requirements, obligations and limitations imposed by other applicable laws, ordinances, and orders of the City Council, and shall become effective when approved by all concerned departments. (Ord. C-7091 § 1 (part), 1993)

5.47.040 Permit application—Reviewed by City departments.

No permit shall be granted under this Chapter until the Bureau of Commercial Services has notified the Chief of Police, the City Health Officer and the traffic engineer of the application and has received from each of them, in writing, their comments and recommendations on the application. (Ord. C-7091 § 1 (part), 1993)

5.47.050 Application/permit fees.

A. A nonrefundable application fee, to defray the cost of processing the application for a permit under this Chapter, shall be required to be paid by every applicant seeking such a permit.

B. Additionally, a permit fee shall be required to be paid by each applicant whose application for a permit has been granted pursuant to the provisions of this Chapter, to defray a proportionate share of the costs of administering this permit.

C. The Bureau of Commercial Services is authorized to establish the initial amount of the application and permit fees which amount shall not exceed the actual cost of processing the application and administering the permit. Subsequently, such fees shall be ratified and set by resolution of the City Council. (Ord. C-7091 § 1 (part), 1993)

5.47.060 Permit and business license required.

A. A business license shall be obtained and the fee therefor shall be paid as prescribed by the business license provision of this Code by every person to whom a horse-drawn carriage permit has been granted pursuant to this Chapter.

B. No permittee under this Chapter shall operate or permit operation of any horse-drawn carriage in violation of this Chapter or of the permit issued pursuant to this Chapter.

C. No person granted a permit under this Chapter shall conduct any operation or give any

service other than the service authorized by the permit granted in accordance with the provisions of this Chapter. (Ord. C-7091 § 1 (part), 1993)

5.47.070 Permit—Display.

Every horse-drawn carriage operated pursuant to these provisions shall have displayed thereon its permit/decal in the manner and form as may be prescribed by the Bureau of Commercial Services. (Ord. C-7091 § 1 (part), 1993)

5.47.080 Regulations applicable to horse-drawn carriages and drivers.

Every person conducting the business of horse-drawn carriages in the City and any person driving such a carriage for such a business shall comply with each and all of the following provisions and restrictions:

A. There should be no operation along any street which has a speed limit over thirty (30) miles per hour unless such operation has prior written approval by the City's Traffic Engineer. Crossing of such streets must be only at a signalized intersection, and then only when it can be safely accomplished within the timing parameters which exist, or within an alternative timing pattern which can be implemented with no adverse effects on the general public's safety or mobility. The carriage must have sufficient steel in it to cause it to actuate traffic signal detector loops.

B. There should be no operation along any street which is configured so as to force motor vehicles to cross a centerline or make any other unsafe maneuver in order to get around a slow-moving carriage.

C. Horse and carriage standing areas (while awaiting a fare) must be in a location which does not impede free flow of motor vehicles and/or access to designated parking stalls as approved by the City as a part of the permit application process.

D. When operating on a multilane highway, carriage shall keep to the right as far as possible except when preparing for a left turn.

E. Carriage shall not operate in any other manner not specifically addressed herein which is judged by the City Traffic Engineer to be unduly hazardous or congestive in its effects. The City Traffic Engineer reserves the right to impose upon a carriage operator at any time any specific restrictions deemed necessary in the interest of public safety or welfare.

F. Carriage shall observe specifically prescribed nonoperating hours in specific zones or on specific streets.

G. Horse drop off location and storage/housing facilities, including parking for hauling vehicles and horse trailers, as well as all proposed routes and hours of operation, must be approved by the City as a part of the permit application process.

H. Carriages/animals shall be fitted to be able to immediately remove any and all horse droppings from the streets or public rights-of-way or to prevent such droppings on the streets and public rights-of way.

I. All horses used in the business shall be, at all times, treated in a humane manner.

J. Regular service shall not be scheduled during hours of three-thirty o'clock (3:30) p.m. to six o'clock (6:00) p.m. on nonholiday weekdays.

K. Special charter trips may travel for a maximum of two (2) blocks during the aforementioned restricted hours if necessary to reach a specific destination. The City Traffic Engineer reserves the right to alter or eliminate this exception if it proves to create severe congestion or safety problems.

L. Carriages shall, to the extent possible, make right turn movements onto any street if at a point of entry which is controlled by a stop sign. Crossing movements and left turns should generally be made at signalized intersections.

M. Warning taillights shall be mounted at the rear of the carriage and shall be operated in a flashing mode continuously while the carriage is in traffic and shall conform to all applicable requirements of the California Vehicle Code. All carriages shall be fitted with reflective decals on both shafts of the carriage at the shoulder of the horse.

N. The seasonal daytime closure of any street shall apply to carriages as well as to motor vehicles.

O. Vehicles must be safe and sanitary, and all carriages shall be fitted with a hydraulic breaking system. (Ord. C-7091 § 1 (part), 1993)

5.47.090 Indemnity and insurance.

At all times permittee shall defend, indemnify, and hold harmless the City, its officials, employees, and agents from and against all claims, demands, damage, causes of action, proceedings, loss, liability, costs and expenses (including reasonable attorney fees) of any kind (collectively in this Section, "claim") alleging injury to or death of persons or damage to property and that such injury, death or damage arises from or is attributable to or caused by any of the operations of permittee. Permittee shall notify the City of any claim within ten (10) days.

Permittee shall procure and maintain, at its cost, during the term of the permit and any renewals thereof, insurance as prescribed in regulations issued by the City Manager pursuant to Section 2.84.040. (Ord. C-7934 § 5, 2004: Ord. C-7091 § 1 (part), 1993)

5.47.100 Penalty for violation.

Any person who violates any of the provisions of this Chapter, or of any permit issued under this Chapter, shall be guilty of a misdemeanor. (Ord. C-7091 § 1 (part), 1993)

5.47.110 Operating regulations.

A. No person under the age of eighteen (18) years shall drive a horse-drawn carriage.

B. No person shall operate a horse-drawn carriage while under the influence of alcoholic beverages or drugs.

C. No person shall operate a horse-drawn carriage in any manner which impedes or blocks the normal or reasonable movement of pedestrian or vehicular traffic unless such operation is necessary for safe operation or in compliance with law.

D. Every person operating a horse-drawn carriage shall be subject to all applicable laws, rules and regulations of this Code and the Vehicle Code of the State of California.

E. No person shall operate a horse-drawn carriage over any route not designated in the permit for the operation of such horse-drawn carriage.

F. Whenever a horse-drawn carriage is not available for hire, said horse-drawn carriage shall be stored at a place and in a manner as approved by the City.

G. Notwithstanding any other provisions of this Chapter 5.47, no horse and carriage business shall be permitted to operate on or in any area of the City under the jurisdiction of the Department of Parks, Recreation and Marine unless a fully executed agreement exists between the business and the department, and when and if such agreement exists, no permit pursuant to the provisions of this Chapter shall be required for any activities taking place within parks pursuant to that agreement. (Ord. C-7091 § 1 (part), 1993)

CHAPTER 5.48 HOTELS AND MOTELS

5.48.010 Hotel and motel rentals.

A. Every owner, manager or operator of any hotel or motel shall keep a register in which shall be entered the name and address of each guest. No owner, manager or operator of any hotel or motel shall let, lease, or rent a hotel or motel room to any person without verifying the guest has valid identification and has accurately and legibly completed the register and/or registration card with the information that corresponds to the valid identification presented by the guest. Said register shall also indicate the day, month, year and hour of arrival of each guest and the number or other identifying symbol of location of the room, dwelling unit or space rented or assigned each guest and the date that such guest departs. All such registers shall be maintained for a period of three (3) years from and after the date of entry. No person shall alter, deface or erase such a register so as to make the information recorded therein illegible or unintelligible.

B. No owner, manager, operator, employee, or agent of any hotel or motel shall rent or assign

any room, dwelling unit or space in said hotel or motel to any person until such time as said person shall have registered as set forth in Subsection 5.48.010.A.

C. No owner, manager, operator, employee or agent of any hotel or motel shall rent any guestroom or dwelling unit in such hotel and motel more than once within a twelve (12) hour period. For purposes of this Section the terms "guestroom", "dwelling unit", "hotel", and "motel" shall be as defined in Chapter 21.15 of this Code.

D. No person shall provide any false information, register under a fictitious name or show or use a forged, altered or counterfeit identification when procuring a hotel or motel room within the City. The hotel or motel agent and/or employee shall be responsible for verifying the authenticity of the identification used by the person letting, leasing or renting the hotel or motel room.

E. Inspection of hotels and motels that are open for business may be made at any reasonable hour by any member of the Police Department or by any employee of the department of financial management for the purpose of determining that the provisions of this Section are met.

F. Right to Judicial Review. If permission to inspect is refused or cannot be obtained, a valid court order for inspection shall be obtained from a court of competent jurisdiction upon a showing of probable cause to believe that a violation of this Chapter may exist. (ORD.14-0005(Emerg.), § 1, 2014; Ord. C-7517 § 1, 1997: Ord. C-7461 § 2, 1997; Ord. C-7423 § 20, 1996: Ord. C-6260 § 1 (part), 1986)

5.48.020 Payment of minimum compensation and sick days to hotel workers.

A. Except as otherwise provided in this Section, each hotel employer shall pay hotel workers a minimum hourly wage of not less than the following hourly rates:

1. On July 1, 2024, twenty-three dollars ($23.00) per hour.

2. On July 1, 2025, twenty-five dollars ($25.00) per hour.

3. On July 1, 2026, twenty-six dollars and fifty cents ($26.50) per hour.

4. On July 1, 2027, twenty-eight dollars ($28.00) per hour.

5. On July 1, 2028, twenty-nine dollars and fifty cents ($29.50) per hour.

B. The City Manager, or their designee, shall publish a bulletin by April 1 of each year announcing the adjusted rates, which shall take effect the following July 1. Such bulletin will be made available to all hotel employers and to any other person who has filed with the City Manager, or their designee, a request to receive such notice but lack of notice shall not excuse noncompliance with this Subsection. A hotel employer shall provide written notification of the rate adjustments this Section to each of its hotel workers and make the necessary payroll adjustments by July 1 following the publication of the bulletin. Other forms of compensation, such as, service charges, commissions, bonuses, tips or gratuities, received by hotel workers shall not be credited as being any part of or offset against the wage rates required by this Section.

C. Service charges shall not be retained by a hotel employer but shall be paid in the entirety by the hotel employer to the hotel worker(s) performing services for the customers from whom the service charges are collected. Service charges, or any part thereof, shall not be paid to supervisory or managerial employees. Service charges shall be paid to the hotel worker(s) in the next payroll following collection of a service charge from the customer. Without limitation of the foregoing:

1. Service charges collected for banquets or catered meetings shall be paid equally to the hotel worker(s) who actually work the banquet or catered meeting; and

2. Service charges collected for room service shall be paid to the hotel worker(s) who actually deliver food and beverage associated with the charge; and

3. Service charges collected for porterage service shall be paid to the hotel worker(s) who actually carry the baggage associated with the charge.

This Subsection does not apply to any tip, gratuity, money, or part of any tip, gratuity, or money that has been paid or given to or left for a hotel worker by customers over and above the actual amount due for services rendered or for goods, food, drink, or articles sold or served to the customer.

D. A hotel employer shall pay every hotel worker sick pay out of the employer's general assets as follows:

1. At least five (5) compensated days off per calendar year for sick leave at the hotel worker's request. The hotel worker need not present certification of illness to claim compensated time off, provided that such hotel worker has accrued the requested days of compensated time at the time of the request. A hotel worker shall be paid his or her normal daily compensation for each compensated day off;

2. A hotel worker shall accrue five-twelfths (5/12) of a day of compensated time for each full month in a calendar year that the hotel worker has been employed by the hotel employer. A hotel worker is entitled to use any accrued days of compensated time as soon as those days have accrued;

3. If any hotel worker has not utilized all of his or her accrued compensated time by the end of any calendar year, the hotel employer shall pay that hotel worker a lump sum payment at the end of the calendar year equivalent to the compensation due for any unused compensated time.

E. The provisions of this Section may not be waived by agreement between an individual hotel worker and a hotel employer. All of the provisions of this Section, or any part hereof, may be waived in a bona fide collective bargaining agreement, but only if the waiver is explicitly set forth in such agreement in clear and unambiguous terms. Unilateral implementation of terms and conditions of employment by either party to a collective bargaining relationship shall not constitute, or be permitted, as a waiver of all or any part of the provisions of this Section. A hotel employer shall not discharge, reduce the compensation of or otherwise discriminate against any hotel worker for using any civil remedies to enforce this Section or otherwise asserting his or her rights under this Section.

F. A hotel worker claiming violation of this Section may bring an individual or class action against his or her employer in Superior Court to enforce the provisions of this Section and shall be entitled to all remedies available under the law or in equity appropriate to remedy any violation of this Section, including but not limited to lost compensation, damages, reinstatement or injunctive relief. A hotel worker who prevails in any action to enforce this Section shall be awarded his or her reasonable attorney's fees and costs.

G. If any provision of this Section is declared illegal, invalid or inoperative, in whole or in part, by the final decision of any court of competent jurisdiction, the remaining provisions and all portions not declared illegal, invalid or inoperative shall remain in full force or effect, and no such determination shall invalidate the remaining provisions or portions of the provisions of this Section.

H. This Section may be amended from time to time by ordinance adopted by a two-thirds (2/3) vote of the members of the City Council upon a finding by the City Council that such amendment is consistent with and in furtherance of the purposes of this Section to ensure hotel workers receive fair compensation and benefits, such as, wages, service charges, and sick pay, for the work they perform. However, no action shall be taken by the City Council to increase the wages of hotel workers in this Section until on or after June 1, 2029. Thereafter, the City Council may amend this Section to increase the hourly wages of hotel workers five (5) years from the date of the last amendment by the City Council to increase such wages and after consideration of a labor market analysis.

I. Definitions. The words set forth in this Subsection shall have the following meaning when used in this Section:

1. "Compensation" includes any wages, tips, bonuses, service charges, and other payments reported as taxable income paid by the hotel employer to the hotel worker.

2. "Hotel" means a residential building that is designated or used for lodging and other related services for the public and containing one hundred (100) or more guest rooms, or suites of rooms. "Hotel" also includes any contracted, leased, or sublet premises connected to or operated in conjunction with the building's purpose, or providing services at the building.

3. "Hotel employer" means a person who owns, controls, and/or operates a hotel in the City of Long Beach, or a person who owns, controls, and/or operates any contracted, leased, or sublet premises connected to or operated in conjunction with the hotel's purpose, or a person, other than a hotel worker, who provides services at the hotel.

4. "Hotel worker" means any individual (1) whose primary place of employment is at one or more hotels; and (2) who is employed directly by the hotel employer or by a person who has contracted with the hotel employer to provide services at the hotel.

5. "Person" means an individual, corporation, partnership, limited partnership, limited liability partnership, limited liability company, business trust, estate, trust, association, joint venture, agency, instrumentality, or any other legal or commercial entity, whether domestic or foreign.

6. "Service charge" means all separately-designated amounts, regardless of name or label, charged and collected by an employer from customers, that is for service by employees, or is described in such a way that customers might reasonably believe that the amount is for those services or is otherwise to be paid or payable directly to employees or is used to pay for labor or worker protections, including those charges designated on receipts, invoices, or billing statements under the term "service charge," "table charge," "porterage charge," "automatic gratuity charge," "healthcare surcharge," "benefits surcharge," "hotel worker protection fee," "housekeeping fee," or similar language. Service charge does not include a tip or gratuity as defined under state or federal law, or taxes and fees levied by federal, state or local government.

7. "Wage" means all amounts for labor performed by hotel workers of hotel employers, whether the amount is fixed or ascertained by the standard of time, task, piece, commission basis, or other method of calculation, as defined by California Labor Code Section 200(a). (Measure RW § 1(Exh. A), 2024; Measure N, 2012)

CHAPTER 5.49 HOTEL WORKING CONDITIONS

5.49.010 Purpose.

The purpose of this initiative is to protect the safety and improve working conditions of hotel employees in the City.

Hotel employees who work by themselves are vulnerable to crimes and other threatening behavior, including sexual assault. This Chapter enables hotel workers to protect their safety by, among other measures, requiring that hotel employers provide workers who clean guest rooms with panic buttons which they may use to report threatening conduct by a hotel guest and other emergencies. Many instances of sexual assault go unreported to the police. This Chapter also includes provisions that support hotel employees' ability to report criminal and threatening guest behavior to the proper authorities.

Hotel employees who clean guest rooms are also frequently assigned overly burdensome room cleaning quotas and unexpected overtime, which undermines the public interest in ensuring that hotel room cleaners can perform their work in a manner that adequately protects public health and interferes with their ability to meet family and personal obligations. This Chapter includes provisions to assure that workers receive fair compensation when their workload assignments exceed proscribed limits and to prohibit hotel employers from assigning employees overtime work when their shifts exceed 10 hours in a day, except in emergency situations, without obtaining workers' informed consent. (Measure WW § 1, 2018)

5.49.020 Definitions.

"Additional-bed rooms" means a room with additional beds such as cots or rollaways.

"Checkout" means a room where the guests are ending their stay.

"Emergency" means an immediate threat to public safety or of substantial risk of property loss or destruction.

"Guest" means registered guests, others occupying guest rooms with registered guests, and visitors invited to guest rooms by a registered guest or other occupant of a guest room.

"Guest room" means a room made available by a hotel for transient occupancy, consistent with Long Beach Municipal Code section 18.70.030.

"Hotel" means structures as defined by Long Beach Municipal Code section 9.02.080, and containing 50 or more guest rooms, or suites of rooms. "Hotel" also includes any contracted leased, or sublet premises connected to or operated in conjunction with the building's purpose, or providing services at the building.

"Hotel employee" means any individual: (1) who is employed directly by the hotel employer or by a person who has contracted with the hotel employer to provide services at a hotel in the City of Long Beach; and (2) who was hired to or did work an average 5 hours/week for 4 weeks at one or more hotels.

"Hotel employer" means a person who owns, controls, and/or operates a hotel in the City of Long Beach, or a person who owns, controls, and/or operates any contracted, leased, or sublet premises connected to or operated in conjunction with the hotel's purpose, or a person, other than a hotel employee, who provides services at the hotel.

"Panic button" means an emergency electronic contact device carried by a hotel employee by which the hotel employee may summon immediate on-scene assistance from a security guard or other person employed by the hotel.

"Person" means an individual, corporation, partnership, limited partnership, limited liability partnership, limited liability company, business trust, estate, trust, association, joint venture, agency, instrumentality, or any other legal or commercial entity, whether domestic or foreign.

"Room cleaner" means a person whose principal duties are to clean and put in order residential guest rooms in a hotel, regardless of who employs the person.

"Workday" means a 24-hour period beginning at 12:00 a.m. and ending at 11:59 p.m. (Measure WW § 1, 2018)

5.49.030 Measures to protect hotel employees from harassment and assault.

A. Panic Buttons. A hotel employer shall provide a panic button to each hotel employee assigned to work in a guest room without other hotel employees present, at no cost to the hotel employee. A hotel employee may use the panic button if the hotel employee reasonably believes there is an ongoing crime, threatening behavior, or other emergency in the hotel employee's presence. The hotel employee may cease work and leave the immediate area of danger to await the arrival of assistance.

B. Notice in Guest Rooms. Each hotel employer shall place a sign on the back of each guest room door, written in a font size of no less than 18 points, that includes the heading "The Law Protects Hotel Housekeepers and Hotel Employees From Threatening Behavior," a citation to this Chapter of the Long Beach Municipal Code, and notice of the fact that the hotel is providing panic buttons to its housekeepers, room servers, and other hotel employees assigned to work in guest rooms without other hotel employees present, in compliance with this Chapter.

C. Hotel Employees' Rights. A hotel employee who brings to the attention of a hotel employer the occurrence of violence or threatening behavior, including but not limited to, indecent exposure, solicitation, assault, or coercive sexual conduct by a guest shall be afforded the following rights:

1. If the hotel employee reasonably believes that his or her safety is at risk and so requests, the hotel employee shall be reassigned to a different floor, or, if none is available for his or her job classification, a different work area, away from the

person who is alleged to have engaged in the violence or threatening behavior, for the entire duration of the person's stay at the hotel;

2. The hotel employer shall immediately allow the affected hotel employee sufficient paid time to contact the police and provide a police statement and to consult with a counselor or advisor of the hotel employee's choosing; the hotel employer will permit, but may never require, the complaining hotel employee to report an incident involving alleged criminal conduct by a guest to the law enforcement agency with jurisdiction; and

3. The hotel employer shall cooperate with any investigation into the incident undertaken by the law enforcement agency and/or any attorney for the complaining hotel employee. (Measure WW § 1, 2018)

5.49.040 Humane Workload.

A hotel employer shall not require a room cleaner to clean rooms amounting to more than 4,000 square feet of floorspace, or more than the maximum floor space otherwise specified in this Section, in any one, eight-hour workday unless the hotel employer pays the room cleaner twice his or her regular rate of pay for all hours worked by the room cleaner during the workday. If a room cleaner works fewer than eight hours in a workday, the maximum floor space shall be reduced on a prorated basis. When a room cleaner during a workday is assigned to clean any combination of seven or more checkout rooms or additional-bed rooms, the maximum floorspace to be cleaned shall be reduced by 500 square feet for each such checkout or additional-bed room over six. The limitations contained herein apply to any combination of spaces, including guest rooms and suites, meeting rooms or hospitality rooms, and apply regardless of the furniture, equipment or amenities in any rooms. (Measure WW § 1, 2018)

5.49.050 Voluntary overtime.

A hotel employer shall not suffer or permit a hotel employee to work more than 10 hours in any workday unless the hotel employee consents. Consents must be written and signed by the hotel employee or communicated electronically through an account or number particular to the hotel employee. No consent is valid unless the hotel employer has advised the hotel employee in writing not more than 30 days preceding the consent that the hotel employee may decline to work more than 10 hours in any workday and that the hotel employer will not subject the hotel employee to any adverse action for declining. An assignment in excess of 10 hours in a work day due to an emergency shall not violate this section. (Measure WW § 1, 2018)

5.49.060 Preservation of records.

Each hotel employer shall maintain for at least two years for each room cleaner a record of his or her name, pay rates received, and the rooms (or at the hotel employer's option, total amount of square footage) each room cleaner has cleaned on each workday. Each hotel employer shall preserve for at least two years a record of the written consents it received from hotel employees to work more than ten hours during a shift. The hotel employer shall make such records available to employees of the hotel or their representatives for inspection and copying except the hotel employees' names (and any addresses and social security numbers) shall be redacted unless the requester is a hotel employee requesting records concerning herself. Failure of the hotel employer to provide a copy of such records will result in a penalty of at least one hundred dollars ($100.00) per day up to one thousand dollars ($1,000.00) per day, the amount to be set by the court. (Measure WW § 1, 2018)

5.49.070 No retaliation.

No person shall discharge, reduce in compensation, increase workload, impose fees or charges, change duties or otherwise take adverse action against any hotel employee for opposing any practice proscribed by this article, for participating in proceedings related to this article, for seeking to enforce his or her rights under this article by any lawful means, or for otherwise asserting rights under this article. A person terminating or taking any other adverse action against any hotel em-

ployee who has engaged in any of the foregoing activities within one year preceding the termination or other adverse action shall provide to the hotel employee at or before the time of the termination or other adverse action a detailed written statement of the reason or reasons for the termination or other adverse action including all the facts substantiating the reason or reasons and all facts known to the person that contradict the substantiating facts. (Measure WW § 1, 2018)

5.49.080 Waiver.

The provisions of this Chapter may not be waived by agreement between an individual hotel employee and a hotel employer. All of the provisions of Sections 5.49.040 and 5.49.050, or any part thereof, may be waived in a bona fide collective bargaining agreement but only if the waiver is explicitly set forth in such agreement in clear and unambiguous terms. Unilateral implementation of terms and conditions of employment by either party to a collective bargaining relationship shall not constitute, or be permitted, as a waiver of all or any part of the provisions of this Section. (Measure WW § 1, 2018)

5.49.090 Enforcement.

A. A hotel employee or representative of hotel employees claiming violation of this chapter may bring an action in the Superior Court and shall be entitled to all remedies available under the law or in equity appropriate to remedy any such violation, including but not limited to injunctive relief or other equitable relief, including reinstatement, and compensatory damages and other relief provided in this subsection. In addition to any other remedy to which a hotel employee is entitled under this section, a hotel employer that violates Subsection A of Section 5.49.030 shall be liable to each affected hotel employee for statutory damages in the amount of fifty dollars ($50) for each day on which a violation occurred; a hotel employer that violates Section 5.49.040 shall be liable to each affected hotel employee for statutory damages in the amount of fifty dollars ($50) for each day on which a violation occurred; and a hotel employer that violates Section 5.49.050 shall be liable to each affected hotel employee for statutory damages in the amount of fifty dollars ($50) for each day on which a violation occurred. In the event of a willful violation of Section 5.49.070, the amount of damages attributable to lost income due to the violation shall be trebled. If a hotel employee is the prevailing party in any legal action taken pursuant to this article, the court shall award reasonable attorney's fees and costs as part of the costs recoverable.

B. Each hotel employer shall give written notification to each current hotel employee, and to each new hotel employee at time of hire, of his or her rights under this Section. The notification shall be in each language spoken by more than ten (10) hotel employees.

C. A hotel employer that contracts with another person, including, without limitation, another hotel employer, a temporary staffing agency, employee leasing agency or professional employer organization, to obtain the services of hotel employees shall share all civil legal responsibility, and civil liability for violations of this Chapter by that person for hotel employees performing work pursuant to the contract. For the purposes of this subsection, the term "person" shall not include: (1) A bona fide nonprofit, community-based organization that provides services to workers; (2) A bona fide labor organization or apprenticeship program or hiring hall operated pursuant to a collective bargaining agreement. (Measure WW § 1, 2018)

5.49.100 Severability.

If any provision or application of this chapter is declared illegal, invalid or inoperative, in whole or in part, by any court of competent jurisdiction, the remaining provisions and portions thereof shall remain in full force or effect. The courts are hereby authorized to reform the provisions of this chapter in order to preserve its maximum permissible effect. (Measure WW § 1, 2018)

5.49.110 No Preemption of Higher Standards.

This Chapter does not preempt or prevent the establishment of superior standards or the expan-

sion of coverage by ordinance, resolution, contract, or any other action of the City of Long Beach. This Chapter shall not be construed to limit a discharged hotel employee's right to bring a common law cause of action for wrongful termination. (Measure WW § 1, 2018)

5.49.120 Regulations.

The City shall have authority to adopt rules and regulations consistent with and necessary for the implementation of this Chapter. Such rules and regulations shall have the force and effect of law, and may be relied upon by hotel employers, hotel employees and other parties to determine their rights and responsibilities under this Chapter. (Measure WW § 1, 2018)

CHAPTER 5.50 HOUSE MOVERS

5.50.010 House movers—Insurance requirements.

Every house mover licensed to do business in the City under Chapter 3.80 of the Long Beach Municipal Code shall maintain insurance prescribed in regulations issued by the City Manager pursuant to Section 2.84.040. (Ord. C-7934 § 6, 2004: Ord. C-6260 § 1 (part), 1986)

CHAPTER 5.51 RESERVED*

CHAPTER 5.52 JUNK DEALERS†

5.52.010 Definitions.

The following words, as used in this Chapter, shall have the signification attached to them in this Section, unless otherwise clearly apparent from the context:

A. "Fixed or established place of business" means and includes any place in the City actually occupied continually by a person engaged in the business of a junk dealer where the books and records of such person are kept, and at which a large share of the business of such person is transacted.

B. "Junk" means and includes old iron and other metal, used mercury, glass, papers, cordage, or other waste or other discarded material which may be treated or prepared so as to be used again in some other form, or for a purpose other than that for which it was originally made.

C. "Junk collector" means and includes any person carrying on, managing, or employed in the business of going from house to house, or from place to place in the City, collecting or buying junk in small quantities.

D. "Junk dealer" means and includes any person having a fixed place of business in the City and engaged in carrying on the business of selling or otherwise dealing in junk, either at wholesale or retail or as assignee. (Ord. C-7423 § 21, 1996: Ord. C-6260 § 1 (part), 1986)

5.52.020 Permit—Application.

A. Every person desiring to carry on or conduct a business which includes activities of junk dealer or junk collector as defined in this Chapter shall make a written application to and upon forms furnished by the Director of Financial Management. The application shall be signed and sworn to by the applicant. Every person applying for a permit to carry on, or conduct the business of junk dealer or junk collector shall be photographed and fingerprinted by the Police Department.

B. The permit applied for shall not be issued to the applicant unless the Chief of Police is satisfied, after investigation, that the applicant is a proper person to conduct such business. The Chief of Police shall have sixty (60) days from the date of the application for investigation before the issuance of any permit to carry on the business. (Ord. C-7423 § 21, 1996: Ord. C-6260 § 1 (part), 1986)

5.52.030 Business License—Permit required.

No business license to conduct the business of a junk dealer or junk collector shall be issued until a permit therefor has been approved by the Chief

---

***Editor's note**—ORD-26-0011 § 5, adopted May 5, 2026, repealed Ch. 5.51 §§ 5.51.010—5.51.070, which was entitled "Ice Cream Trucks," and derived from: ORD-13-0011 § 1, 2013; and ORD-05-0031 § 1, 2005.

†**State law reference**—Provisions on junkyards, Bus. and Prof. C. § 21600 et seq.

of Police as provided in this Chapter. (Ord. C-7423 § 21, 1996: Ord. C-6260 § 1 (part), 1986)

5.52.040 Operating requirements.

A. Every junk collector using any boat, or other vehicle for collecting junk in the City, shall procure from the Director of Financial Management one (1) decal of such design as shall be specified by the Director of Financial Management. No junk collector shall operate such boat or other vehicle, as above-mentioned, unless the decal is securely fastened on the left front side of the boat or other vehicle in a conspicuous place and plainly visible.

B. No person shall collect junk within the City between the hours of seven p.m. and eight a.m. of the following day.

C. No person shall carry on the business of junk dealer or junk collector in a manner that will result in litter on public or private property.

D. Every junk dealer shall maintain a record of every transaction which includes the date and the hour of the day when each article was purchased or received, and the true name and address, as nearly as the same is known to or can be ascertained by such junk dealer, and the personal signatures of the person or persons by whom the articles were sold or delivered, together with a description of the person or persons as may be required by the Chief of Police, and the correct license number and type of any vehicle used in the delivery of such goods; and the report shall also show the amount purchased, and a complete description of each article purchased or received; and if an article so purchased or received has a number, letter, engraving, figure or other mark showing or designating the size, quality, make or design of such article, then the report shall show all such numbers, letters, engravings, figures and marks; and if the article has a serial number, the serial number shall also be shown. Every report or record required by the terms of this Chapter to be maintained or kept shall be written or printed entirely in the English language in a clear and legible manner. Every record required pursuant to this Chapter shall be open at all times to inspection by the Chief of Police, or any police officer in the pursuit of his/her official duties; provided, however, that this Section shall not apply to, goods or things purchased from any dealer or tradesman who is duly licensed to operate such business in the City. The records mentioned in this Section shall be filed and kept at the street and number of the place where the junk dealer states, in the business license application, that the business will be carried on, and it shall be the duty of every junk dealer and foundry, and of every employee, manager or agent of such junk dealer to display and exhibit such records to the Chief of Police or to any Police Officer in the pursuit of his/her official duties on the demand, oral or written, of the Chief of Police or Police Officer. (Ord. C-7423 § 21, 1996: Ord. C-6260 § 1 (part), 1986)

5.52.090 False name or address by seller.

No person selling any goods or other articles, as provided in this Chapter, shall give or use a false name or address, or give or use a name or address not his own correct name and address, in such transaction. (Ord. C-7423 § 21, 1996: Ord. C-6260 § 1 (part), 1986)

5.52.100 Resale within seven days prohibited.

No junk dealer or any agent, employee, or manager thereof shall alter, clean, repair, paint, change the appearance of or sell or otherwise dispose of any goods or other things within seven (7) days after the purchase or receipt of them; and no junk dealer or any employee, agent, or manager thereof shall alter, clean, repair, paint or change the appearance of or sell or otherwise dispose of any goods or other things that are salable for or fit for use for the purpose for which originally made or intended, within twenty-one (21) days after the purchase or receipt of them; provided that this Section shall not apply to goods or things purchased from any dealer or tradesman who is duly licensed to operate such business in the City. Every junk dealer shall keep all such goods or other things accessible to the inspection of the Chief of Police or any Police Officer in the pursuit of his/her official duties. Every junk dealer, and every agent, employee or manager thereof, on the demand of the Chief of Police or Police Officer, shall display and exhibit such goods or other things to the Chief of Police or Police Officer. (Ord. C-7423 § 21, 1996: Ord. C-6260 § 1 (part), 1986)

5.52.110 Exceptions.

The provisions contained in Sections 5.52.090 and 5.52.100 shall not be deemed to apply to the purchase by junk dealers of rags, bottles, second-hand sacks in lots of less than fifty (50) in number, barrels, cans, stoves, newspapers, old automobile tires, or old batteries. (Ord. C-7461 § 3, 1997: Ord. C-7423 § 21, 1996: Ord. C-6260 § 1 (part), 1986)

5.52.120 Purchase from minors.

No person engaged in or carrying on the business of a junk dealer or junk collector in the City

shall purchase or receive any junk as defined in this Chapter from any person under the age of eighteen (18) years. (Ord. C-7423 § 21, 1996: Ord. C-6260 § 1 (part), 1986)

CHAPTER 5.53 COVID-19 CITYWIDE WORKER RETENTION

5.53.010 Purpose.

As a result of the COVID-19 pandemic, many workers in the City of Long Beach are facing significant job and economic insecurity. The COVID-19 pandemic has caused hospitality and janitorial service employers in the City to discharge, layoff and furlough workers at a massive scale. Many hotel and janitorial service workers have been separated from their jobs as a result of the pandemic, and thousands more are still experiencing economic hardship. This has caused a sense of uncertainty with these workers. While federal, state and local programs, and efforts by certain non-profits, have provided some support to hotel and janitorial service workers in the short-term, what these workers need most is the continuing opportunity of retaining their jobs during business transfers of ownership. To ensure fair employment practices, provide some security during times of economic upheaval and protect against dangers posed by future pandemics, including future COVID-19 variants and surges, the City hereby enacts legal protections for workers when a business changes ownership. (ORD-22-0009 § 1, 2022; ORD-20-0016 § 1, 2020)

5.53.020 Definitions.

The following definitions shall apply to this Chapter:

A. "Business" means a Hotel or Commercial Property Business.

B. "Change in Control" means any sale, assignment, transfer, bankruptcy, contribution, or other disposition of all or substantially all of the assets used in the operation of a Business, or a discrete portion of a Business that continues to operate as the same type of Business of the Incumbent Business Employer, or any Person who controls the Incumbent Business Employer.

C. "City" means the City of Long Beach.

D. "Commercial Property Business" means non-residential property in the City that provides janitorial services and employs twenty-five (25) or more employees.

E. "Employment Commencement Date" means the date on which a Worker retained by a Successor Business Employer pursuant to this Ordinance commences work for the Successor Business Employer in exchange for compensation under terms and conditions established by the Successor Business Employer or as required by law.

F. "Hotel" has the same meaning as in Section 9.02.080 of the Long Beach Municipal Code. This Chapter only applies to hotels with twenty-five (25) or more employees who provide services in conjunction with the hotel's purpose.

G. "Incumbent Business Employer" means the Person who owns, controls, subcontracts or operates a Hotel or Commercial Property Business prior to the Change in Control.

H. "Length of Service" means the total of all periods of time during which a Worker has been in active service, including periods of time when the Worker was on leave or vacation.

I. "Person" means an individual, corporation, partnership, limited partnership, limited liability company, business trust, estate, trust, association joint venture, agency, instrumentality, or any other legal or commercial entity, whether domestic or foreign.

J. "Successor Business Employer" means the Person who owns controls, and/or operates a Business after a Change in Control.

K. "Transfer Document" means the purchase agreement or other documents creating a binding arrangement to effect the Change in Control.

L. "Worker" means an individual employed by the Incumbent Business Employer who performs work at a Hotel or Commercial Property Business and: (1) who has a Length of Service with the Incumbent Business Employer for six (6) months or more; (2) whose primary place of employment is a Business subject to a Change in Control; (3) who is employed or contracted to

perform work functions directly by the Incumbent Business Employer, or by a Person who has contracted with the Incumbent Business Employer to provide services at the Business subject to the Change in Control; and (4) who worked for the Incumbent Business Employer on or after March 4, 2020, and prior to the execution of the Transfer Document. "Worker" does not include a person employed as a manager, supervisor, or confidential employee. (ORD-22-0009 § 1, 2022; ORD-20-0016 § 1, 2020)

5.53.030 Business worker retention.

A. Business Employer's Responsibilities.

1. The Incumbent Business Employer shall, within fifteen (15) days after execution of a Transfer Document, provide to the Successor Business Employer the name, address, date of hire, and occupation classification of each Worker.

2. The Successor Business Employer shall maintain a preferential hiring list of Workers identified by the Incumbent Business Employer as set forth in Subsection A.1 of this Section, and shall be required to hire from that list for a period beginning upon the execution of the Transfer Document and continuing for six (6) months after the Business is open to the public under the operation of the Successor Business Employer.

3. If the Successor Business Employer extends an offer of employment to a Worker, the Success Business Employer shall retain written verification of that offer for no fewer than three (3) years from the date the offer was made. The verification shall include the name, address, date of hire, and occupation classification of each Worker.

B. Transition employment period.

1. A Successor Business Employer shall retain each Worker hired pursuant to this Chapter for no fewer than ninety (90) days following the Worker's Employment Commencement Date. During the ninety (90)-day transition employment period, a Worker shall be employed under reasonable terms and conditions of employment or as required by law. The Successor Business Employer shall provide a Worker with a written offer of employment. This offer shall remain open for at least five (5) business days from the date of the offer.

2. If, within the period established by Section A.2, the Successor Business Employer determines that it requires fewer Workers than were required by the Incumbent Business Employer, the Successor Business Employer shall offer the position to the Worker in the same occupational classification with the greatest Length of Service with the Incumbent Business Employer.

3. During the ninety (90)-day transition employment period, the Successor Business Employer shall not discharge without cause a Worker retained pursuant to this Chapter.

4. At the end of the ninety (90)-day transition employment period, the Successor Business Employer shall perform a written performance evaluation for each Worker retained pursuant to this Ordinance. If the Worker's performance during the ninety (90)-day transition employment period is satisfactory, the Successor Business Employer shall consider offering the Worker continued employment under the terms and conditions established by the Successor Business Employer or as required by law. The Successor Business Employer shall retain a record of the written performance evaluation period of no fewer than three years.

C. Notice of change in control.

1. The Incumbent Business Employer shall post written notice of the Change in Control at the location of the affected Business within five (5) business days following the execution of the Transfer Document. Notice shall remain posted during any closure of the Business and for six (6) months after the Business is open to the public under the Successor Business Employer.

2. Notice shall include, but not be limited to, the name of the Incumbent Business Employer and its contact information, the name of the Successor Business Employer and its contact information, and the effective date of the Change in Control.

3. Notice shall be posted in a conspicuous place at the Business so as to be readily viewed by

Workers, other employees, and applicants for employment. (ORD-22-0009 § 1, 2022; ORD-20-0016 § 1, 2020)

5.53.040 Enforcement.

A. A Worker may bring a private right of action in the Superior Court of the State of California against an Incumbent Business Employer or the Successor Business Employer for violations of this Chapter and may be awarded:

1. Hiring and reinstatement rights pursuant to this Chapter. For a Worker, the ninety (90)-day transition employment period begins on the Worker's Employment Commencement Date with the Successor Business Employer.

2. Front or back pay for each day the violation continues, which shall be calculated at a rate of compensation not less than the higher of:

a. The average regular rate of pay received by the Worker during the last three (3) years of the Worker's employment in the same occupation classification; or

b. The most recent regular rate of pay received by the Worker while employed by either the Business, Incumbent Business Employer, or the Successor Business Employer.

3. Value of the benefits the Worker would have received under the Successor Business Employer's benefits plan.

B. A civil action brought by a Worker alleging a violation of any provision of this Chapter shall commence only after the following requirements have been met:

1. The Worker provides written notice to the Incumbent Business Employer and/or the Successor Business Employer of the provisions of this Chapter alleged to have been violated and the facts supporting the alleged violation; and

2. The Incumbent Business Employer and/or the Successor Business Employer is provided fifteen (15) days from receipt of the written notice to cure any alleged violation.

C. The Court shall award reasonable attorneys' fees and costs to a Worker who prevails in any such enforcement action or to a Business Employer who prevails and obtains a court determination that the Worker's lawsuit was frivolous.

D. Notwithstanding any provision of this Code, or any other ordinance to the contrary, no criminal penalties shall attach for violation of this Chapter. (ORD-22-0009 § 1, 2022; ORD-20-0016 § 1, 2020)

5.53.050 Retaliatory action prohibited.

No Incumbent or Successor Business Employer employing a Worker shall discharge, reduce in compensation, or otherwise discriminate against any Worker for opposing any practice proscribed by this Chapter, for participating in proceedings related to this Chapter, for seeking to exercise their rights under this Chapter by any lawful means, or for otherwise asserting rights under this Chapter. (ORD-22-0009 § 1, 2022; ORD-20-0016 § 1, 2020)

5.53.060 Exemption for collective bargaining agreement.

All of the provisions of this Chapter, or any part thereof, may be expressly waived in a collective bargaining agreement, but only if the waiver is explicitly set forth in the agreement in clear and unambiguous terms. Unilateral implementation of terms and conditions of employment by either party to a collective bargaining relationship shall not constitute a waiver of all or any of the provisions of this Chapter. (ORD-22-0009 § 1, 2022; ORD-20-0016 § 1, 2020)

5.53.070 No waiver of rights.

Except for a collective bargaining agreement provision made pursuant to Section 5.543.060, any waiver by a Worker of any or all provisions of this Chapter shall be deemed contrary to public policy and shall be void and unenforceable. Other than in connection with the bona fide negotiation of a collective bargaining agreement, any request by an Employer to a Worker to waive rights given by this Chapter shall be a violation of this Chapter. (ORD-22-0009 § 1, 2022; ORD-20-0016 § 1, 2020)

5.53.080 Severability.

If any section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Ordinance. The City Council hereby declares that it would have adopted this Ordinance and each and every section, subsection, sentence, clause and phrase thereof not declared invalid or unconstitutional, without regard to whether any portion of the Ordinance would be subsequently declared invalid or unconstitutional. (ORD-22-0009 § 1, 2022; ORD-20-0016 § 1, 2020)

5.53.090 Reserved.

Editor's note—ORD-22-0009 § 2, adopted Mar. 8, 2022, repealed § 5.53.090 entitled "City Manager report," which derived from ORD-20-0016 § 1, 2020.

CHAPTER 5.54 HOTEL WORKER SAFETY PRECAUTIONS

5.54.010 Purpose.

The purpose of this Chapter is to protect the safety of hotel employees in the City. Hotel employees who work by themselves are vulnerable to crimes and other threatening behavior, including sexual assault. This Chapter enables hotel workers to protect their safety by requiring that hotel employers provide workers who clean guest rooms with panic buttons which they may use to report threatening conduct by a hotel guest and other emergencies. Many instances of sexual assault go unreported to the police. This Chapter also includes provisions that support hotel employees' ability to report criminal and threatening guest behavior to the proper authorities. (ORD-18-0028 § 1, 2018)

5.54.020 Definitions.

A. "Emergency" means an immediate threat to public safety or of substantial risk of property loss or destruction.

B. "Guest" means registered guests, others occupying guest rooms with registered guests, and visitors invited to guest rooms by a registered guest or other occupant of a guest room.

C. "Guest room" means a room made available by a hotel for transient occupancy, consistent with Long Beach Municipal Code section 18.70.030.

D. "Hotel" means structures as defined by Long Beach Municipal Code section 9.02.080, or suites of rooms, and includes motels as defined by Long Beach Municipal Code section 21.15.1800. "Hotel" also includes any contracted, leased, or sublet premises connected to or operated in conjunction with the building's purpose, or providing services at the building. However, "hotel" shall not include short-term residential rentals (such as AirBnb, VRBO, Homeaway, Flipkey, and others), or bed and breakfast establishments meeting the conditions set forth in Section 21.52.209 of this Code.

E. "Hotel employee" means any individual: (1) who is employed directly by the hotel employer or by a person who has contracted with the hotel employer to provide services at a hotel in the City; and (2) who was hired to or did work an average 5 hours/week for 4 weeks at one or more hotels.

F. "Hotel employer" means a person who owns, controls, and/or operates a hotel in the City of Long Beach, or a person who owns, controls, and/or operates any contracted, leased, or sublet premises connected to or operated in conjunction with the hotel's purpose, or a person, other than an hotel employee, who provides services at the hotel.

G. "Panic button" means an emergency electronic contact device carried by a hotel employee by which the hotel employee may summon immediate on-scene assistance from a security guard or other person employed by the hotel.

H. "Person" means an individual, corporation, partnership, limited partnership, limited liability partnership, limited liability company, business trust, estate, trust, association, joint venture, agency, instrumentality, or any other legal or commercial entity, whether domestic or foreign. (ORD-19-0005 § 1, 2019; ORD-18-0028 § 1, 2018)

5.54.030 Measures to protect hotel employees from harassment and assault.

A. Panic buttons. A hotel employer shall provide a panic button to each hotel employee as-

signed to work in a guest room without other employees present, regardless of job classification, at no cost to the hotel employee. It is recognized that because of the varying size and physical layout of each hotel, different devices may be appropriate for different hotels. A hotel employee may use the panic button if the hotel employee reasonably believes there is an ongoing crime, threatening behavior, or other emergency in the hotel employee's presence. The hotel employee may cease work and leave the immediate area of danger to await the arrival of assistance.

B. Hotel employees' rights.

1. The hotel employer must allow guest room doors to be left open during cleaning. Nothing herein shall prevent a hotel employee from voluntarily electing to keep a guest room door closed during cleaning as the hotel employee sees fit.

2. A hotel employee who brings to the attention of a hotel employer the occurrence or violence or threatening behavior, including but not limited to indecent exposure, solicitation, assault, or coercive sexual conduct by a guest shall be afforded the following rights:

a. If the hotel employee reasonably believes that his or her safety is at risk and so requests, the hotel employee shall be reassigned to a different work area, away from the person who is alleged to have engaged in the violence or threatening behavior for the duration of any continued occupancy by the person at the hotel;

b. The hotel employer shall immediately allow the affected hotel employee sufficient time to contact the police and provide a police statement; and

c. The hotel employer shall cooperate with any investigation into the incident undertaken by the law enforcement agency with jurisdiction.

d. No person shall discharge, reduce in compensation, increase workload, impose fees or charges, change duties or otherwise take adverse action against any hotel employee for opposing any practice proscribed by this Chapter, for participating in proceedings related to this Chapter, for seeking to enforce his or her rights under this Chapter by any lawful means, or for otherwise asserting rights under this Chapter. A person terminating or taking any other adverse action against any hotel employee who has engaged in any of the foregoing activities within one (1) year preceding the termination or other adverse action shall provide to the hotel employee at or before the time of the termination or other adverse action a detailed written statement of the reason or reasons for the termination or other adverse action including all the facts substantiating the reason or reasons and all facts known to the person that contradict the substantiating facts.

e. Each hotel employer shall give written notification to each current hotel employee, and to each new hotel employee at the time of hire, of his or her rights under this Section. The notification shall be in each language spoken by more than ten (10) hotel employees. (ORD-19-0005 § 2, 2019; ORD-18-0028 § 1, 2018)

5.54.040 Application to existing hotels.

Any hotel containing fifty (50) or more guest rooms, or suites of rooms, operating under an existing business license on the effective date of this Chapter shall be brought into full compliance with the provisions of this Chapter, not later than six (6) months following the effective date of this Chapter. All other hotels containing less than fifty (50) guest rooms, or suites of rooms, operating under an existing business license on the effective date of this Chapter shall be brought into full compliance with the provisions of this Chapter, not later than twelve (12) months following the effective date of this Chapter. (ORD-18-0028 § 1, 2018)

5.54.050 Severability.

If any provision or application of this Chapter is declared illegal, invalid or inoperative, in whole or in part, by any court of competent jurisdiction, the remaining provisions and portions thereof shall remain in full force or effect. The courts are hereby authorized to reform the provisions in this Chapter in order to preserve its maximum permissible effect. (ORD-18-0028 § 1, 2018)

5.54.060 Relationship to other ordinances.

These provisions are not intended to abrogate or impair the provisions of any other section of this Code which is not in conflict with the provisions of this Chapter. However, in the event of a conflict between the provisions of this Chapter and the provisions of any other ordinance, the provisions of the Code that establish the more stringent, superior or higher standards shall control. (ORD-18-0028 § 1, 2018)

CHAPTER 5.55 COVID-19 CITYWIDE WORKER RECALL

5.55.010 Purpose.

As a result of the COVID-19 pandemic, many workers in the City of Long Beach are facing significant job and economic insecurity. The COVID-19 pandemic has caused hospitality and janitorial service employers in the City to discharge, layoff and furlough workers at a massive scale. Many hotel and janitorial service workers have already been separated from their jobs as a result of the pandemic, and thousands more are still experiencing economic hardship. This has caused a sense of uncertainty with these workers. While federal, state, and local programs, and efforts by certain non-profits, have provided some support to hotel and janitorial service workers in the short-term, what these workers need most is the promise of a return to their previous jobs as the pandemic begins to recede and business activity resumes. To ensure fair employment practices, provide some security during times of economic upheaval and protect against dangers posed by future pandemics, including future COVID-19 variants and surges, the City hereby enacts legal protections for workers laid-off due to the COVID-19 pandemic. (ORD-22-0010 § 1, 2022; ORD-20-0015 § 1, 2020)

5.55.020 Definitions.

The following definitions shall apply to this Chapter:

A. "City" means the City of Long Beach.

B. "Commercial Property Employer" means an owner, operator, manager or lessee, including a contractor, subcontractor, or sublessee, of a non-residential property in the City that provides janitorial services and employs twenty-five (25) or more employees.

C. "Employer" means a Commercial Property Employer or Hotel Employer.

D. "Hotel" has the same meaning as in Section 9.02.080 of the Long Beach Municipal Code.

E. "Hotel Employer" means any person who owns, controls, or operates a hotel in the City and employs twenty-five (25) or more employees who provide services at a hotel in conjunction with the hotel's purpose. A "Hotel Employer" includes any contracted, leased or sublet premises connected to or operated in conjunction with the building's purpose, or providing services at the building.

F. "Laid-off Employee" means a Hotel or Commercial Property employee who, in a particular week, performed at least two (2) hours of work within the geographical boundaries of the City for an Employer, had a Length of Service with the Employer of six (6) months or more, and whose most recent separation from active employment occurred on or after March 4, 2020, as a result of a lack of business, a reduction in work force, bankruptcy, or other economic, non-disciplinary reason. This Section creates a rebuttable presumption that any termination occurring on or after March 4, 2020, was due to a non-disciplinary reason. For purposes of this Chapter, a Laid-off Employee does not include any person employed as a manager, supervisor, or confidential employee.

G. "Length of Service" means the total of all periods of time during which a Laid-off Employee has been in active service, including periods of time when the Laid-off Employee was on leave or on vacation. (ORD-22-0010 § 1, 2022; ORD-20-0015 § 1, 2020)

5.55.030 Right of recall.

A. Priority for Laid-off Employees. An Employer shall offer its Laid-off Employees in writing, to their last known mailing address, electronic

mail and text message to the extent the Employer possesses such information, all job positions which become available after the effective date of this Chapter for which the Laid-off Employee is qualified. A Laid-off Employee is qualified for a position if the Laid-off Employee:

1. held the same or similar position at the site of employment at the time of the Laid-off Employee's most recent separation from active service with the Employer; or

2. is or can be qualified for the position with the same training that would be provided to a new employee hired into that position.

The Employer shall offer positions to Laid-off Employees in an order of preference corresponding to categories (1) and (2) above. Where more than one (1) Laid-off Employee is entitled to preference for a position, the Employer shall offer the position to the Laid-off Employee with the greatest Length of Service with the Employer.

B. Time Limit. A Laid-off Employee who is offered a position pursuant to this Chapter shall be given no less than five (5) business days in which to accept or decline the offer of re-employment. A "business day" is any day except Saturday, Sunday or official state holidays. (ORD-22-0010 § 1, 2022; ORD-20-0015 § 1, 2020)

5.55.040 Enforcement.

A Laid-off Employee may bring a private right of action in the Superior Court of the State of California against an Employer for violations of this Chapter and may be awarded:

A. Hiring and reinstatement rights pursuant to this Chapter.

B. All actual damages (including, but not limited to, lost pay and benefits) suffered by the Laid-off Employee and for statutory damages in the sum of one thousand dollars ($1,000), whichever is greater.

C. Punitive damages, pursuant to California Civil Code Section 3294.

D. Reasonable attorney's fees and costs, as determined by the court, if the Laid-off Employee is the prevailing party in the action; or

E. To an Employer who prevails and obtains a court determination that the worker's lawsuit was frivolous.

F. A civil action by a Laid-off Employee alleging a violation of any provision of this Chapter shall commence only after the following requirements have been met:

1. The Laid-off Employee provides written notice to the Employer of the provisions of this Chapter alleged to have been violated and the facts to support the alleged violation; and

2. The Employer is provided fifteen (15) days from receipt of the written notice to cure any alleged violation.

G. Notwithstanding any other provision of this Code, or any other ordinance to the contrary, no criminal penalties shall attach for a violation of this Chapter. (ORD-22-0010 § 1, 2022; ORD-20-0015 § 1, 2020)

5.55.050 Retaliatory action prohibited.

No employer shall terminate, reduce in compensation, or otherwise discriminate against any worker for seeking to enforce their rights under this Chapter by any lawful means, for participating in proceedings related to this Chapter, for opposing any practice proscribed by this Chapter, or for otherwise asserting rights under this Chapter. (ORD-22-0010 § 1, 2022; ORD-20-0015 § 1, 2020)

5.55.060 Exemption for collective bargaining agreement.

All of the provisions of this Chapter, or any part of the Chapter, may be waived in a bona fide collective bargaining agreement, but only if the waiver is explicitly set forth in that agreement in clear and unambiguous terms. Unilateral implementation of terms and conditions of employment by either party to a collective bargaining relationship shall not constitute or be permitted as a waiver of all or any part of the provisions of this Chapter. (ORD-22-0010 § 1, 2022; ORD-20-0015 § 1, 2020)

5.55.070 No waiver of rights.

Except for a collective bargaining agreement provision made pursuant to Section 5.55.060, any

waiver by a worker of any or all provisions of this Chapter shall be deemed contrary to public policy and shall be void and unenforceable. Other than in connection with the bona fide negotiation of a collective bargaining agreement, any request by an Employer to a worker to waive rights given by this Chapter shall constitute a violation of this Chapter. (ORD-22-0010 § 1, 2022; ORD-20-0015 § 1, 2020)

5.55.080 Severability.

If any section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Ordinance. The City Council hereby declares that it would have adopted this Ordinance, and each and every section, subsection, sentence, clause and phrase thereof not declared invalid or unconstitutional, without regard to whether any portion of the Ordinance would be subsequently declared invalid or unconstitutional. (ORD-22-0010 § 1, 2022; ORD-20-0015 § 1, 2020)

5.55.090 Reserved.

Editor's note—ORD-22-0010 § 2, adopted Mar. 8, 2022, repealed § 5.55.090 entitled "City Manager report," which derived from ORD-20-0015 § 1, 2020.

CHAPTER 5.56 LOCKSMITHS

5.56.010 Applicability.

This Chapter shall apply to "locksmiths" as that term is defined in California Business and Professions Code Section 6980(j). This Chapter shall not apply to those persons set forth in California Business and Professions Code Section 6980.12. (Ord. C-7423 § 22, 1996: Ord. C-6260 § 1 (part), 1986)

5.56.020 Permit and license required.

No person shall practice, engage in or carry on the business of locksmith in the City without having first met the following requirements:

A. The person has paid any business license tax required pursuant to Chapter 3.80 herein; and

B. The person holds a valid locksmith license in accordance with the provisions of California Business and Professions Code Section 6980.10, and exhibits a copy of said license. (Ord. C-7423 § 22, 1996: Ord. C-6260 § 1 (part), 1986)

CHAPTER 5.57 NUISANCE MOTEL REGULATION

5.57.010 Purpose and intent.

The purpose of this Chapter is to promote the public health, safety and welfare as follows by imposing anti-nuisance standards on motels located within the City of Long Beach and creating an interdepartmental team led by the Planning Bureau in the Department of Development Services to monitor and enforce these standards. (ORD-20-0002 § 1, 2020)

5.57.020 Definitions.

A. "Calls for service" includes, but is not limited to, any and all calls to emergency services (police, fire, medical) that result in a City representative being dispatched or directed to the motel. This shall include any calls for service within the surrounding neighborhood that, through information or investigation, can be traced to the motel staff and/or registered guest(s) and/or visitor(s). Calls for service include any self-initiated activity and/or investigation based on the observation(s) of an emergency services representative.

B. "Drug-related arrests" include, but are not limited to, those that involve the manufacture, cultivation, importation into the State, transportation, possession, possession for sale, sale, furnishing, administering, giving away, or providing a place to use any controlled drug, narcotic or drug paraphernalia.

C. "Guest" shall mean any person that occupies a guestroom.

D. "Guestroom" shall mean a sleeping room in a motel designed and intended to be used as lodging as documented by the City Building Official or their designee.

E. "Interdepartmental Team" shall mean a team of City staff from multiple Departments,

including but not limited to; the Health Department, Department of Development Services Code Enforcement and Planning Bureaus, and if necessary, the Fire Department, Police Department, City Prosecutor's Office and City Attorney's Office.

F. "Manager" means any person who, in connection with the activities of a motel, manages the business's operations, including but not limited to the collection of rental charges, issuing of keys, direction of maintenance personnel, assigning of rooms to guests, and handling guest affairs and overseeing security. The term shall also include the resident manager and assistant manager.

G. "Motel" means a commercial land use for the rental of six (6) or more guestrooms or suites to primarily transient occupants for a period of not more than thirty (30) consecutive days. Motel is distinguished from hotel by having entry individually and independently from outside the building or buildings. Motel also includes tourist court, motor court, motor lodge or any other designation intended to identify the premises as providing rental or overnight accommodations primarily to motorists.

H. "Operator" means any person who is the proprietor of any motel, whether in the capacity of owner, lessee, receiver, sublessee, franchisee, mortgagee in possession, manager or agent of any of the aforementioned, who offers and accepts payment for rooms, guestrooms, sleeping accommodations, or board and lodging, and retains the right of access to, and control of, the dwelling unit.

I. "Owner" means any person, persons, corporation or other legal entity who is the owner of record with the Los Angeles County Recorder's office. Also, any person or persons acting with the authorization of the owner on behalf of the owner.

J. "Person" means and includes any individual, partnership, corporation, organization, association, federal, State and local governmental entity or political subdivision or agency thereof. (ORD-20-0002 § 1, 2020)

5.57.030 Regulations.

A. A motel that is deemed a nuisance site shall retain its business license only if it conforms to any and all combination of the following regulations as deemed required by the City Interdepartmental Team. The owner or operator shall:

1. Completely limit pedestrian and vehicle access to the property and rooms by a fence, gate, security guard or other means to control access to the site and allow surveillance of arrivals, departures, and the parking areas from the office.

2. Install closed circuit television (CCTV) in common areas and/or at entry points on premises.

3. Display crime-prevention signage, including notices of 24-hour recording, human trafficking prevention awareness and contact information, and 24-hour contact telephone number of the local property management company.

4. Install deadbolt locks, peepholes, window locks and door chains or swing bars on all guest room doors.

5. Provide a motel manager and/or staff member on site on a 24-hour basis.

6. Provide adequate lighting for visibility and safety.

7. Provide uniform lighting throughout site and avoid light trespass by using full cutoff fixtures.

8. Ensure the motel does not have any interior or exterior areas where stagnant water has accumulated.

9. Ensure all necessary means have been employed to eliminate and control infestation of insects, bed bugs and rodents on the premises.

10. Employ exterior monitoring traps for rodents and establish contracts for pest control services if necessary.

11. Provide a clean and working lavatory, along with soap, toilet tissue, individual towels, and suitable waste receptacles in each guestroom.

12. Maintain plumbing throughout the premises and in each guestroom in good condition, without leaks or drips.

13. Maintain floors, walls, and ceilings of guestrooms, along with all bedding materials in clean and good repair.

14. Ensure all eating and drinking utensils are either single-use or are washed and sanitized after each guest.

15. Ensure ice machines are clean and only accessible to guests and staff and are inaccessible to the general public.

16. Maintain all waste containers, trash bins, and dumpsters on the premises free of the accumulation of refuse, dirt and waste products.

17. If applicable, maintain motel pool in compliance with all sections of the California Code of Regulations, Title 22, with clear water and safety equipment on hand.

18. Ensure that no unregistered adult visitors occupy a guestroom between 10:00 p.m. and 6:00 a.m. of the following day.

19. Post house rules in the lobby and all guestrooms, and require a guest and visitor signature acknowledging posted rules.

20. Owner/operator cannot rent out a guestroom more than once within any twelve (12) hour period.

21. Comply with Chapter 3.64 ("Transient Occupancy Tax") of this Code and locate all books and records related to Transient Occupancy Tax on the motel site.

22. Collect and visually verify the vehicle license number of any guests and/or visitors and issue a parking permit for each vehicle, with vehicle towing enforced. (ORD-20-0002 § 1, 2020)

5.57.040 Administration and enforcement.

A. Upon receiving a complaint from the public, Police Department, Code Enforcement or any interested person that the operation of a hotel or motel is such that it is or has negatively impacted the health, safety, or welfare of its guests or the residents or business of the neighboring community, the following procedure shall be followed:

1. The City shall assess the nature and validity of the complaint and the validity by conducting an investigation of the premises to assess the motel's compliance with the applicable regulations. The City shall provide the owner and/or operator, as appropriate, with written notice of any complaint received or investigation commenced by the City relative to the motel's failure to abide by the regulations set forth in this Chapter.

2. Upon establishing the validity of the complaint, the City Interdepartmental Team shall conduct additional analysis of the site in question, including analysis of Calls for Service and other activity at the site. If deemed necessary by the Interdepartmental Team, the owner and/or operator shall meet with City staff to discuss how to correct the violation, including compliance with regulations in 5.57.030. The owner and/or operator shall correct the violation, or take reasonable action to begin correction, and shall diligently pursue completion of the correction within Thirty (30) days after receiving written notification of the violation.

3. If, at the end of the correction period, the City determines the violation has not been corrected, an administrative citation may be issued, pursuant to Chapter 9.65, or the Nuisance Abatement process may be initiated, pursuant to Chapter 9.37, depending on the nature of the violation.

4. The administrative citation process described in this Chapter does not preclude the City from recovering any other nuisance abatement costs incurred by the City in performing its code enforcement duties.

5. The City may collect a fee to recover costs associated with the inspection and enforcement of this Chapter in accordance with the City Council adopted fee resolution.

6. In the event the City is unable to gain compliance through administrative citations and penalties, a business permit for a motel may be suspended or revoked according to the procedures outlined in Chapter 5.06, or a deemed approved conditional use status may be revoked as provided in Chapter 21.

B. The following City departments may conduct enforcement efforts in response to a valid complaint: Health Department, Development Services, Fire Department, Police Department, City Prosecutor's Office or City Attorney's Office, or any other relevant department as designated by the City Manager. (ORD-20-0002 § 1, 2020)

CHAPTER 5.58 MASSAGE ESTABLISHMENTS*

5.58.010 Purpose and intent.

The purpose of this Chapter is to promote the public health, safety and welfare as follows:

A. This Chapter will regulate lawful massage businesses pursuant to Government Code sections 51030 et seq., and 37101, and California Business and Professions Code sections 4600 et seq., 16000, and 16100, and by virtue of Section 7 of Article XI of the Constitution of the State of California.

B. There is significant risk of injury to massage clients by improperly trained and/or uneducated massage therapists and this Chapter provides reasonable safeguards against injury and economic loss.

C. There is opportunity for acts of prostitution, sex trafficking, and/or other unlawful sexual activity to occur in massage establishments, and this Chapter provides safeguards against these practices.

***Editor's note**—ORD-18-0018 § 1, adopted July 10, 2018, amended Ch. 5.58 in its entirety to read as herein set out. Former Ch. 5.58, §§ 5.58.010—5.58.200 was entitled "Massage," and derived from: Ord. C-6260; Ord. C-6325; Ord. C-6862; Ord. C-6979, 1992; Ord. C-6994, 1992; Ord. C-7333, 1995; Ord. C-7423, 1996; and Ord. C-7546, 1998.

D. The permit requirements and restrictions imposed by this Chapter are reasonably necessary to protect the health, safety and welfare of the citizens of the City of Long Beach, as well as to ward against illegal sexual commerce. (ORD-18-0018 § 1, 2018)

5.58.020 Definitions.

A. "Acupuncture" is the stimulation of a certain point or points on or near the surface of the body by the insertion of needles to prevent or modify the perception of pain or to normalize physiological functions, including pain control, for the treatment of certain diseases or dysfunctions of the body and includes the techniques of electro acupuncture, cupping, and moxibustion. "Acupressure" is based on a theory similar to acupuncture except that it stimulates acupuncture points by the application of pressure rather than needling.

B. "Adult-oriented merchandise" is any sexually-oriented implements, paraphernalia, or novelty items, such as but not limited to: condoms and sexually-oriented items that are designed or marketed primarily for the stimulation of human genital organs.

C. "Applicant", in the case of a massage establishment permit, means an individual, or if not an individual, the general partner, chief executive officer, chief advisor, or other person(s) responsible for the ownership and operation of the massage establishment, who applies to obtain a permit under this Chapter.

D. "California Massage Therapy Council" or "CAMTC" means the Massage Therapy organization formed pursuant to California Business and Professions Code Sections 4600 et seq.

E. "Certified massage practitioner" or "practitioner" means a person who is currently certified as a massage practitioner by the CAMTC.

F. "City" shall mean the City of Long Beach, California.

G. "Chief of Police" is the Chief of Police of the Long Beach Police Department or his or her designee.

H. "Director of Financial Management" is the Director of Financial Management or his or her designee.

I. "Employee" means any owner, partner, operator, manager, supervisor or worker, (whether part-time, full-time, temporary, or permanent) whether paid or not, who renders personal services of any nature in the operation of a massage establishment in exchange for any form of compensation from the business.

J. "Independent contractor" means a certified massage practitioner who works at a separate massage establishment, but is not a salaried employee and does not share a percentage of massage proceeds with that massage establishment. An independent contractor is also considered an individual massage establishment for purposes of compliance with this Chapter.

K. "Massage", "massage therapy", or "bodywork" means the skillful application of touch, including but not limited to, pressure, stroking, kneading, compression on or movement of the external surfaces of the body to produce increased awareness, relaxation, pain relief, injury rehabilitation, or neuromuscular re-education. Examples of massage include but are not limited to Swedish massage, sports massage, shiatsu, polarity therapy, rolfing, hellerwork and reflexology.

L. "Massage establishment" means any business that offers massage therapy in exchange for compensation. Any business that offers any combination of massage and bath facilities, including, but not limited to, showers, baths, wet and dry heat rooms, pools and hot tubs shall be deemed a massage establishment under this Chapter. Massage establishment includes a certified massage practitioner who is the sole owner or operator of a massage establishment, or operating as a sole proprietorship.

M. "Massage therapist" means any person, including an independent contractor, who provides or administers massage therapy services to another person for any form of consideration or compensation whether for the massage, as part of other services or a product, or otherwise. For pur-

poses of this definition, "massage therapist", "massage technician", "massage practitioner" and "masseuse" shall have the same meaning.

N. "Managing employee" is any employee of a massage establishment who has been designated by the massage establishment permittee to manage the business.

O. "Massage Establishment Permit" means the Massage Establishment Permit to engage in the business of massage therapy where required by this Chapter and as issued by the Director of Financial Management.

P. "Permittee" is any person possessing a permit required and issued under this Chapter, or any owner or operator of the permitted massage establishment.

Q. "Person" means any individual, co-partnership, firm, association, joint stock company, corporation, joint venture, or combination of individuals of whatever form or character.

R. "Sexual or genital part" means the genitals, pubic area, anus, perineum of any person and the breasts of any female.

S. "Sole proprietorship" means and includes any legal form of business organization where the business is owned by one individual (or "sole proprietor"). (ORD-18-0018 § 1, 2018)

5.58.030 Massage Establishment Permit - required.

A. No person shall engage in, carry on, or conduct the business of a massage establishment without first having obtained a Business License as prescribed by the provisions of Chapter 3.80, and, where required by this Chapter, a Massage Establishment Permit, a Health Permit, and an Administrative Use Permit as prescribed in Title 21.

B. No person shall engage in, conduct, or carry on the function of a massage therapist, whether as an independent contractor, employee or owner of a massage establishment, without being certified by the CAMTC as a certified massage therapist, certified massage practitioner, or conditionally certified massage practitioner pursuant to California Business and Professions Code Sections 4600 et seq. Persons practicing acupressure under the direction of a licensed State of California acupuncturist shall obtain CAMTC certification as required in this Chapter.

C. Massage Establishment Permit. A massage establishment, except an independent contractor, must be issued a Massage Establishment Permit. A Massage Establishment Permit issued under this Chapter does not authorize the permittee to commence operations pursuant to the permit until the permittee has complied with all business license requirements, zoning/planning requirements, and all other applicable federal, state, and City of Long Beach laws and regulations. A Massage Establishment Permit does not authorize the permittee to provide massage therapy services, and it is unlawful to do so without valid CAMTC certification.

D. Health Permit. A massage establishment, except an independent contractor, must be issued a Health Permit. A Health Permit shall be issued by the Health Officer when investigation has determined that the proposed massage establishment and its facility and method of operation meets the specifications or conforms to the requirements of this Chapter and any applicable laws and regulations. A Health Permit, once issued, is nontransferable and shall only be valid for the person or entity, location, type of services or activities, and, unless suspended or revoked, for the time period indicated. Any Health Permit fees, including recovery and enforcement costs, shall be determined by resolution of the City Council.

E. Administrative Use Permit (AUP) for massage as a Primary Use. A massage establishment, other than an independent contractor, where massage is the primary use (over 50%) of the business must apply for and be issued, prior to operation, an Administrative Use Permit (AUP), and such AUP shall be maintained, in accordance with Chapters 21.25 and 21.32 of the Long Beach Municipal Code.

F. A massage establishment shall not be issued a Business License without a Massage Establishment Permit, Health Permit, or Administra-

tive Use Permit when required by this Chapter. (ORD-18-0018 § 1, 2018)

5.58.040 Massage Establishment Permit - exemptions.

A. The permit requirements of this Chapter shall not apply to the following persons or entities while engaged in the performance of their duties and operating in compliance with any applicable federal, state and/or local law:

1. Physicians, surgeons, chiropractors, osteopaths, nurses, physical therapists, or acupuncturists who are duly licensed to practice their respective professions in the State.

2. Barbers, beauticians, cosmetologists, and estheticians who are duly licensed under the laws of the State while engaging in practices within the scope of their licenses.

3. Hospitals, nursing homes, sanitariums, or any other health facility duly licensed by the State.

4. Accredited high schools, junior colleges, colleges, or universities whose coaches and trainers are acting within the scope of their employment.

5. Accredited colleges or universities that offer massage therapy programs whose instructors and students are acting within the scope of their employments or within the scope of their curriculum.

6. Trainers of amateur, semiprofessional or professional athletes or athletic teams while engaging in their training responsibilities for and with athletes; and trainers working in conjunction with a specific athletic event such as road races, track meets, triathlons, biathlons, or similar single occurrence athletic or recreational events.

7. Hotels with over one hundred (100) rooms. (ORD-18-0018 § 1, 2018)

5.58.050 Massage Establishment Permit application process.

A. Each applicant for a Massage Establishment Permit shall, for each separate massage establishment or place of business where massage is to occur, complete and file an application on forms provided by the Director of Financial Management. Such application forms shall require, at a minimum, the following information:

1. The name, address and telephone number of the applicant and all other persons or owners having a financial interest in the operation of the massage establishment.

2. The location of the massage establishment or place of business where massage is to occur.

3. A brief description of the nature of the business and services to be provided.

4. Proof of Live Scan completion by a representative of the Long Beach Police Department and proof of fingerprint submission to the Department of Justice for processing pursuant to this Chapter for each owner, only if the owner is not CAMTC certified.

5. If an applicant, himself or herself, intends to engage in, conduct, or carry on the function of a massage therapist, said applicant must provide written proof of the applicant's current, valid certification by CAMTC, and applicants must provide proof of CAMTC certification for any employee(s) who will perform massage services at the applicant's massage establishment and who are known to the applicant at the time of application.

6. Such other information the Director of Financial Management, the Health Officer, or any concerned City department shall deem necessary for the proper processing and review of the application, in accordance with existing law.

B. The person whose signature appears on the application shall attest that he or she is a duly authorized representative of the applicant and that the information contained in the application is true and correct.

C. The application shall be filed under the penalty of perjury. False statements therein will constitute grounds for denial, suspension or revocation as applicable.

D. An incomplete application shall not be accepted for processing.

E. If required, each application shall be accompanied by a nonrefundable fee, in an amount established by resolution of the City Council. The application fee shall be used to defray, in part, the

costs of the investigation, and is not made in lieu of any other fees or taxes required under this Code. Applicants are required to make separate payment to the Police Department for fingerprinting services as required by this Chapter.

F. Upon receipt of a completed Massage Establishment Permit application, the Director of Financial Management shall refer the application to all concerned City departments. Such departments shall file a report providing recommendations regarding the approval or denial of the permit with the Director of Financial Management within sixty (60) calendar days after the completed application is filed, except where circumstances beyond the control of the City justifiably delay such response. (ORD-18-0018 § 1, 2018)

5.58.060 Massage Establishment Permit - issuance.

A. The Director of Financial Management shall make or cause to be made an investigation of the place of business and the manner in which the massage establishment is to be conducted, and if it is found that all provisions of this Code and all applicable laws have been and will be complied with, the Director of Financial Management shall issue the Massage Establishment Permit; otherwise, the application for a Massage Establishment Permit shall be denied.

B. Massage Establishment Permits shall be valid for one (1) year from the date of issuance, and shall be automatically renewed every year upon payment of the required permit fee, provided that the Director of Financial Management determines that the permittee has complied with the provisions of this Chapter and applicable laws during the preceding permit term.

C. Every person maintaining, carrying on or conducting any business for which a permit is required by the provisions of this Chapter shall pay a permit fee in an amount established by the City Council by resolution adopted pursuant to Section 5.04.040 of this Code. (ORD-18-0018 § 1, 2018)

5.58.070 Massage Establishment Permit - denial.

A. If a City department determines that the applicant does not satisfy applicable requirements of this Chapter, the Director of Financial Management shall deny said permit application in accordance with the provisions set forth in Subsection 5.06.020.A of this Code. The applicant shall have the right of appeal as set forth in Section 5.06.030 of this Code.

B. The Chief of Police shall recommend denial of a Massage Establishment Permit if, upon completion of a background check for an individual owner(s) who is not CAMTC-certified, it is determined the owner(s) meets any of the following disqualifying grounds:

1. The applicant has been successfully prosecuted under the Red Light Abatement Act (California Penal Code section 11225 et seq.) or any similar law in another jurisdiction.

2. The applicant has been convicted of any of the following offenses during the ten (10) years preceding the date of the application:

a. Conduct which requires registration under California Penal Code section 290, or which is a violation of Penal Code sections 220, 245.3, 245.5, 266(h), 266(i), 266(j), 286, 288, 314, 315, 316, 318, 647(a), 647(b), 647(d), the sections in Part 1, Title 9, Chapters 7.5 or 7.6 of the Penal Code or equivalent offenses under the laws of another jurisdiction, or any offense involving sexual misconduct with children or adults even if expunged pursuant to Penal Code section 1203.4.

b. Conviction of, or entry of a plea of guilty or no contest to, an offense involving the sale of a controlled substance specified in sections 11054, 11055, 11056, 11057, 11058, 11351, 11352, 11358 through 11363 or 11378 through 11380 of the California Health and Safety Code, or equivalent offenses under the laws of another jurisdiction, even if expunged pursuant to Penal Code section 1203.4.

c. Crimes that are designated in California Government Code section 51032(b).

d. Any crime involving dishonesty, fraud, deceit, violence, or moral turpitude.

e. Conspiracy or attempt to commit any of the aforementioned designated offenses.

f. Convictions to a charge of a violation of California Penal Code sections 415 or 602, or any lesser included or related offense, in satisfaction of, or as a substitute for, any of the previously listed crimes, or any crime committed while engaged in the ownership of a massage establishment or the practice of massage therapy.

g. Conviction of Health and Safety Code section 11550 or any offense involving the illegal sale, distribution or possession of a controlled substance specified in Health and Safety Code sections 11054, 11055, 11056, 11057 or 11058.

h. Convictions under the laws of other jurisdictions which proscribe the same or similar conduct as the crimes designated above. Convictions that have been expunged and convictions under the laws of other jurisdictions which proscribe the same or similar conduct as the crimes designated above shall be reported.

3. The applicant has been subjected to a permanent injunction against the conducting or maintaining of a nuisance pursuant to California Penal Code sections 11225 et seq. or any similar provisions of law in a jurisdiction outside the state.

C. The Chief of Police may postpone decision on a permit application until the City of Long Beach receives the applicant's fingerprint review results from the California Department of Justice. (ORD-18-0018 § 1, 2018)

5.58.080 Suspension or revocation of Massage Establishment Permit.

A. Noncompliance. Failure to comply with any provision of this Chapter pertaining to a Massage Establishment Permit issuance, or any rule or regulation adopted pursuant hereto, or with any other provision or requirement of law, including, but not limited to, this Code and any grounds that would warrant the denial of initial issuance of a permit hereunder, will constitute grounds for suspension or revocation of the permit. The suspension or revocation of the permit shall be governed by the provisions of Chapter 5.06 of this Code.

B. Cease activity. No person shall conduct any business or activity regulated by this Chapter during the pendency of a permit application or at any time after permit denial or revocation, or during the time a permit therefor has been suspended. Any person who engages in any business after a permit has been suspended or revoked and before such permit has been reinstated or a new permit issued, shall be guilty of a misdemeanor.

C. Unless otherwise specifically provided by law, the burden is on the applicant or permittee in any hearing under this Chapter to prove that the determination of the City or an authorized representative which he or she is appealing is unreasonable, erroneous, or clearly abusive of discretion. (ORD-18-0018 § 1, 2018)

5.58.090 Massage Establishment Permit reapplication.

A. Whenever a Massage Establishment Permit application has been denied or a Massage Establishment Permit has been revoked, no other such application or permit shall be considered for a period of one (1) year from either the date notice of the denial or revocation was mailed, or the date of the final decision of the City Council, whichever is later.

B. For the purposes of this Section, the massage establishment business license and the Massage Establishment Permit shall be one and the same, and in the event one is suspended, denied or revoked, the other is simultaneously and automatically deemed suspended, denied or revoked.

C. This Section applies to any person whose Massage Establishment Permit was revoked or whose Massage Establishment Permit application was denied who later becomes a director or officer of a corporation, profit or nonprofit, or a member of a partnership, or a person owning or possessing fifty percent (50%) or more of the shares of a corporation, who seeks to obtain a new Massage Establishment Permit. This shall also apply to a corporation, profit or nonprofit, whose permit was revoked or application denied, and to any of its directors or officers or to any person who owned fifty percent (50%) or more of its shares, who

attempts by way of a new corporation or by the use of their individual names or by becoming a member of a partnership or a director, officer or person owning or possessing fifty percent (50%) or more of the shares in another corporation to obtain a new Massage Establishment Permit. Whenever any Massage Establishment Permit is suspended, the provisions of this Section shall apply to the permittee during the period of suspension. (ORD-18-0018 § 1, 2018)

5.58.100 Massage Establishment Permit nontransferable.

A. No Massage Establishment Permit issued hereunder shall be sold, transferred, or assigned by the permittee, or by operation of law, to any other person, or from one location to another location for any purpose. Any such sale, transfer, assignment, attempted sale, attempted transfer or attempted assignment shall constitute an immediate revocation of the permit, and the permit shall thereafter be null and void.

B. No permittee shall operate under any name or conduct any massage establishment under any designation or location not specified in the permit.

C. If the information required in the permit application changes, a new Massage Establishment Permit is required before the business may continue to operate as a massage establishment. For example, if an owner or operator to whom a permit has been issued changes a business location, that owner or operator must apply for a new permit prior to operating a massage establishment at the new location; or, if the massage establishment business is sold or otherwise has a change in ownership, the new owner(s) must apply for a new permit for that location before the business may operate as a massage establishment.

D. Any application for an expansion of a building of a massage establishment shall require compliance with this Chapter and all other applicable laws. (ORD-18-0018 § 1, 2018)

5.58.110 Minimum age requirement.

A. No person shall be employed in a massage establishment or perform massage therapy or manage or hold an ownership interest in a massage establishment who is not at least 18 years of age.

B. It is a misdemeanor for the owner, proprietor, managing employee, or any other person in charge of any massage establishment to employ any person under eighteen (18) years of age. (ORD-18-0018 § 1, 2018)

5.58.120 Display of permit and certifications.

The Massage Establishment Permit and a copy of the CAMTC certification of each and every massage therapist employed in the massage establishment shall be displayed in an open and conspicuous place on the premises. The City massage establishment business license and the Massage Establishment Permit shall be one and the same, as one document shall be issued upon business license and permit approval. (ORD-18-0018 § 1, 2018)

5.58.130 Facilities and operating requirements.

A. Every massage establishment and every massage therapist shall comply with local, state, and federal standards for such businesses and practitioners and the following facilities and operations requirements:

1. The massage establishment's premises and facilities shall meet and be maintained in a condition to comply with all applicable code requirements of the City, county, and state, including, but not limited to, those related to the safety of structures, adequacy of the plumbing, lighting, heating, ventilation, waterproofing of rooms in which showers, water or steam baths are used, and the health and cleanliness of the facility.

2. Massage establishments and massage therapists shall at all times have an adequate supply of clean sanitary towels, coverings, and linens. Towels, non-disposable coverings, and linens shall not be used on more than one client, unless they have first been laundered and disinfected. Disposable towels and disposable coverings shall not be used on more than one client. Soiled linens and paper towels shall be deposited in separate receptacles.

3. In the massage establishment, wet and dry heat rooms, steam or vapor rooms or cabinets, toilet rooms, shower and bathrooms, tanning

booths, whirlpool baths, and pools shall be thoroughly cleaned and disinfected with a disinfectant as needed, and at least once each day when the premises are open. Bathtubs shall be thoroughly cleaned with a disinfectant after each use. All walls, ceilings, floors, and other physical facilities for the establishment shall be in good repair, and maintained in a clean and sanitary condition.

4. All equipment used in the massage therapy operation shall be maintained in a clean and sanitary condition. Instruments utilized in performing massage therapy shall not be used on more than one client unless they have been sterilized, using standard sterilization methods.

5. Adequate dressing rooms shall be provided to patrons. Dressing rooms may be occupied by no more than one person at a time. Dressing rooms need not be separate from the room in which the massage therapy is being performed.

6. Separate toilet facilities and washbasins are required for each sex as provided by Sections 8.26.050 and 8.26.060 of this Code. All single-user toilet facilities shall be identified as all-gender toilet facilities by signage that complies with Title 24 of the California Code of Regulations, and designated for use by no more than one occupant at a time or for family or assisted use, per California Health and Safety Code section 118600. Toilet facilities shall be provided in convenient locations within the massage establishment and shall include lavatories or wash basins provided with soap and both hot and cold running water either in the toilet room or vestibule.

7. A minimum of one wash basin for employees shall be provided at all times. The basin shall be located within or as close as practicable to the area devoted to performing of massage therapy services. Soap and sanitary towels shall also be provided at each basin.

8. Massage therapy shall be provided or given only between the hours of 7:00 a.m. and 10:00 p.m. No massage establishment shall be open and no client shall be in the establishment between 10:00 p.m. and 7:00 a.m.

9. No alcoholic beverages shall be sold, served, furnished, kept, consumed, or possessed on the premises of any massage establishment, except where authorized by law and, where applicable, approved by the Department of Development Services.

10. Controlled substances must not be consumed in a massage establishment unless the person has a prescription for the substance.

11. No owner, manager, operator, responsible managing employee, or permittee shall permit, and no massage therapist contractor shall offer or perform, any service other than those permitted under this Chapter.

12. No permittee or employee of a massage establishment shall:

a. Expose the sexual or genital part of the permittee or employee in the course of a massage therapy.

b. Touch or expose the sexual or genital part of any other person in the course of a massage therapy.

c. Perform massage therapy on a patron with the intent or purpose of arousing, appealing to, or gratifying the sexual desires of said patron.

d. Perform any task or service associated with the massage establishment in attire prohibited by California Business and Professions Code section 4609(10).

13. No permittee or employee of a massage establishment shall place, publish or distribute or cause to be placed, published or distributed any advertising matter that depicts any portion of the human body that would reasonably suggest to prospective customers that any service is available that is prohibited under this Chapter nor shall any massage establishment employ language in any advertising text or business name that would reasonably suggest to a prospective client that any service is available that is prohibited under this Chapter.

14. The use or possession of adult-oriented merchandise in or on any part of a massage establishment is expressly prohibited.

15. Condoms must not be kept or used for any purpose in the massage establishment.

16. Recordings.

a. No electrical, mechanical or artificial device shall be used by the operator and/or manager, massage therapist or any employee of the massage establishment for audio and/or video recording or for monitoring the performance of a massage therapy, or the conversation or other sounds in the massage rooms without the knowledge and written consent of the patron.

b. No surveillance cameras, or video recording devices of any type, may be installed into rooms in which massage services will be rendered.

17. Locks prohibited.

a. No massage therapy shall be conducted within any cubicle, room, booth or treatment room on the premises of a massage therapy business which is fitted with a lock.

b. All entrance and exit doors on the premises of a massage establishment shall remain unlocked during business hours unless the massage establishment is a business entity owned by one individual with one or fewer employees or independent contractors.

18. All massage services shall be paid for in the reception area. Massage establishments may utilize a system where tip envelopes are provided in the treatment rooms to be utilized and deposited by the client in the reception area.

19. A massage establishment must not be used for residential or sleeping purposes unless the massage establishment is properly zoned and has all necessary use permits, and the massage establishment is owned by one individual with one or fewer employees or independent contractors.

20. No person other than the client and the client′s immediate family or guardian is allowed in the massage room while the client is dressing or undressing.

21. No person other than the client, the massage therapist assigned to the client, and the client′s immediate family or guardian are allowed in the massage room if any door into the massage room is closed. Others may be in the massage room so long as all doors to the room are fully open.

22. Massage establishment personnel or any massage therapist must not inquire as to whether any client is a peace officer.

23. Artificial or natural light must be provided to produce a minimum of ten (10) foot candles of light in all parts of the massage establishment, in accordance with OSHA Regulations, Standard - 29 CFR, Standard Number 1926.56, Title - Illumination, table D-3, and Article 220 of the National Electric Code. (ORD-18-0018 § 1, 2018)

5.58.140 Responsibility of employer/permittee.

A. It shall be the responsibility of the massage establishment permittee who employs or allows any person acting or purporting to act as a massage therapist, or the employer of any person acting or purporting to act as a massage therapist, to ensure that such person complies with the requirements of this Chapter and all laws, including obtaining and maintaining CAMTC certification.

B. The massage establishment permittee shall be held responsible for the conduct of all persons on the premises who engage in providing the service of massage therapy. Any act or omission of any person giving massage therapy, or any service of massage therapy, shall be deemed the act or omission of the holder of the Massage Establishment Permit for the purposes of determining whether the permit may be revoked, suspended, or denied. Proof of knowledge of any violation of this section shall not be required for purposes of suspension, revocation, or denial of a Massage Establishment Permit. (ORD-18-0018 § 1, 2018)

5.58.150 Applicability to existing businesses.

A. Any business establishment operating as a massage establishment under an existing business license on the effective date of this Chapter shall be brought into full compliance with the provisions of this Chapter not later than one hundred eighty (180) days following the effective date of this Chapter, except where otherwise specified herein.

B. All persons currently holding a valid massage technician permit issued by the Chief of Police shall have one (1) year following the enactment of this Chapter in which to become a CAMTC certified massage therapist, certified massage practitioner, or conditionally certified massage practitioner pursuant to California Business and Professions Code Sections 4600 et seq.; failure to comply with this requirement shall result in immediate suspension and/or revocation of the existing permit and/or related license.

C. Any business that holds itself out as a massage establishment in any way including, without limitation, the advertising and soliciting of massages, will be subject to the provisions of this Chapter, unless expressly exempt by this Chapter. (ORD-18-0018 § 1, 2018)

5.58.160 Cease of business.

A Massage Establishment Permit issued pursuant to this Chapter shall become null and void upon the cessation of the business operations and/or the relocation of the business to a different property or address. Permittees shall notify the Director of Financial Management in writing if at any time during the duration of a permit issued under this Chapter a permittee ceases to do business as a massage establishment. (ORD-18-0018 § 1, 2018)

5.58.170 Inspections.

A. The Director of Financial Management, the Health Officer, the Chief of Police, and authorized representatives of concerned City departments are empowered to enter any massage establishment, or other place of business where massage occurs or is suspected of occurring, during any hour in which a massage establishment, or other place of business where massage occurs or is suspected of occurring, is operating, for the purpose of inspection, including the taking of photographs, samples or other items that are plainly visible, to the extent permissible by law, and to enforce any of the provisions of this Chapter, or of any applicable law, rule or regulation governing such places in the City.

B. No person shall refuse to permit or allow the Director of Financial Management, the Health Officer, any authorized inspector, or any representatives of concerned City departments, to enter, inspect or examine any portion of any massage establishment or other place of business where massage occurs. No person shall interfere with, hinder, or harass, in any manner, any City representative in the inspection or the examination of such massage establishment or other place of business where massage occurs. (ORD-18-0018 § 1, 2018)

5.58.180 Enforcement and penalties.

A. It is the duty of the Chief of Police, or other authorized City officials and their designees, to enforce the rules and regulations in accordance with this Chapter.

B. Each day a violation exists constitutes a separate and distinct offense. Suspension or revocation of a Massage Establishment Permit shall be governed by the provisions of this Chapter.

C. Pursuant to the City's prosecutorial discretion, the City may enforce violations of the provisions of this Chapter as criminal actions, and the City may also enforce violations of this Chapter as civil and/or administrative actions.

D. If a person falsely states or advertises or puts out any sign or card or other device, or falsely represents to the public through any print or electronic media, that he or she or any other individual is licensed, certified, or registered by a governmental agency as a massage therapist or massage practitioner, that person shall be subject to a civil penalty not to exceed two thousand five hundred dollars ($2,500) for each violation, to be assessed and collected in a civil action brought by the City Attorney, District Attorney, or Attorney General.

E. Unless otherwise stated in this Chapter, violation of any provision of this Chapter is a misdemeanor and is punishable by a fine of not more than one thousand dollars ($1,000) or by imprisonment for not more than six (6) months or by both such fine and imprisonment. Revocation of a license or permit or certificate shall not be a defense against prosecution.

F. Any massage establishment operated, conducted or maintained contrary to the provisions of this Chapter shall be unlawful and a public nuisance, and the City may, in addition to or in lieu of prosecuting a criminal action hereunder, commence an action(s) or proceeding(s) for the abatement, removal and enjoinment thereof, in a manner provided by law. (ORD-18-0018 § 1, 2018)

5.58.190 Severability.

If any section, subsection, subdivision, paragraph, sentence, clause or phrase of this Chapter, or its application to any person or circumstance, is for any reason held to be invalid or unenforceable, such invalidity or unenforceability shall not affect the validity of enforceability of the remaining sections, subsections, subdivisions, paragraphs, sentences, clauses or phrases of this Chapter, or its application to any other person or circumstance. The City of Long Beach declares that it would have adopted each section, subsection, subdivision, paragraph, sentence, clause or phrase hereof, irrespective of the fact that any one (1) or more sections, subsections, subdivisions paragraphs, sentences, clauses or phrases hereof be declared invalid or unenforceable. (ORD-18-0018 § 1, 2018)

CHAPTER 5.59 MORTGAGE MODIFICATION CONSULTANT

5.59.010 Definitions.

For purposes of this Chapter, the following terms and phrases shall have the meanings set forth herein, unless the context clearly indicates a different meaning. Singular references also include plural and derivative uses of defined terms where capitalized:

A. Contract. Contract means any written agreement, or any term thereof, between a mortgage modification consultant and an owner for the rendition of any service as defined in this Section.

B. Mortgage modification consultant.

1. Mortgage modification consultant means any person who makes any solicitation, or offer to any owner to perform for compensation or who, for compensation, performs any service which the mortgage modification consultant in any manner represents will do any of the following:

a. Contact or negotiate with any beneficiary or mortgagee for the purpose of modifying the interest rate, principal balance or terms of any loan prior to the recording of a notice of default;

b. Prevent the recording of a notice of default;

c. Obtain any forbearance from any beneficiary or mortgagee prior to the recording of a notice of default;

d. Obtain any waiver of an acceleration clause contained in any promissory note or contract secured by a deed or trust or mortgage on a residence or contained in that deed of trust or mortgage prior to the recording of a notice of default;

e. Assist an owner to obtain a loan or advance of funds to cure a mortgage default where the property is not the subject of a recorded notice of default;

f. Avoid or ameliorate the impairment of an owner's credit resulting from the threatened recording of a notice of default;

g. Save an owner's residence from a threatened foreclosure.

2. Mortgage modification consultant does not include any person identified as exempt from the definition of "foreclosure consultant" by Section 2945.1(b) of the California Civil Code.

C. Notice of default. Notice of default means a notice that is recorded pursuant to the provisions of California Civil Code Section 2924.

D. Owner. Owner means the record title owner or owners of residential real property located in the City of Long Beach.

E. Person. Person means any individual, partnership, corporation, limited liability company, association or other entity, however organized.

F. Residence. Residence means residential real property, consisting of one (1) or more dwelling units, one (1) of which the owner or owners occupy as his or her principal place of residence, encumbered by a loan secured by a deed of trust, the terms of which the owner wishes to modify in order to reduce or fix the payments thereon, but is not the subject of a recorded notice of default.

G. Service. Service means and includes, but is not limited to, any of the following:

1. Debt, budget or financial counseling of any type;

2. Receiving money for the purpose of distributing it to creditors in payment or partial payment of any obligation secured by a lien on a residence but prior to the recording of a notice of default on the residence;

3. Contacting creditors on behalf of an owner of a residence but prior to the recording of a notice of default on the residence;

4. Arranging or attempting to arrange for an extension of the period within which the owner of a residence may cure his or her default prior to the recording of a notice of default;

5. Advising the filing of any document or assisting in any manner in the preparation of any document for filing with any bankruptcy court on behalf of an owner of a residence;

6. Giving any advice, explanation or instruction to an owner of a residence which in any manner relates to the cure of an existing or threatened default in, or in an obligation secured by a lien on, the owner's residence, or the postponement or avoidance of the recording of a notice of default for the owner's residence. (ORD-09-0017, § 1, 2009)

5.59.020 Right of cancellation.

A. In addition to any other right under the law to rescind a contract, an owner has the right to cancel a contract until midnight of the seventh calendar day after the day on which the owner signs a contract.

B. Cancellation occurs when the owner gives written notice of cancellation to the mortgage modification consultant by mail at the address specified in the contract, or by facsimile or electronic mail at the number or address identified in the contract.

C. Notice of cancellation, if given by mail, is effective when deposited in the mail properly addressed with the postage prepaid. If given by facsimile or electronic mail, notice of cancellation is effective when successfully transmitted.

D. Notice of cancellation given by the owner need not take the particular form as provided with the contract and; however expressed, is effective if it indicates the intention of the owner not to be bound by the contract. (ORD-09-0017, § 1, 2009)

5.59.030 Contract requirements.

A. Every contract shall be in writing and shall fully disclose the exact nature of the mortgage modification consultant's services and the total amount and terms of compensation.

B. The contract shall be written in the same language as principally used by the mortgage modification consultant to describe his or her services or to negotiate the contract. In addition, the mortgage modification consultant shall provide the owner, before the owner signs the contract, with a copy of the completed contract written in any other language used in communication between the mortgage modification consultant and the owner, and in any language described in Subdivision (b) of California Civil Code Section 1632 if requested by the owner. If English is the language principally used by the mortgage modification consultant to describe the mortgage modification consultant's services or to negotiate the contract, the mortgage modification consultant shall notify the owner orally and in writing before the owner signs the contract that the owner has the right to ask for a completed copy of the contract in a language described in California Civil Code Section 1632.

C. The contract shall be dated and signed by the owner, and shall contain next to the space reserved for the owner's signature a conspicuous statement in a size equal to at least 14-point boldface type the following language:

NOTICE REQUIRED BY THE CITY OF LONG BEACH

You, the owner, may cancel this transaction at any time prior to midnight of the seventh calendar day after you sign this contract. Cancellation occurs when you give written notice of cancellation to the other party to this contract at the party's address identified in the contract, or by facsimile or electronic mail at the number or address identified in this contract.

It is not necessary to pay a third party to arrange for a loan modification or other form of forbearance from your mortgage lender or service. You may call your lender directly to ask for a change in your loan terms. HUD approved nonprofit housing counseling agencies also offer these and other forms of borrower assistance free of charge. A list of nonprofit housing counseling agencies approved by the United States Department of Housing and Urban Development is available from your local HUD office.

You may also reach HUD approved counselors through the Homeownership Preservation Foundation.

D. The contract shall contain on the first page, in a type size no smaller than generally used in the body of the document, each of the following:

1. The name, mailing address, electronic mail address and facsimile number of the mortgage modification consultant to which the notice of cancellation is to be mailed.

2. The date the owner signed the contract.

E. The contract shall be accompanied by a completed form in duplicate, captioned "Notice of Cancellation", which shall be attached to the contract, shall be easily detachable, and shall contain in type at least 14-point type the following statement written in the same language that was used in the contract:

"NOTICE OF CANCELLATION"

F. The mortgage modification consultant shall provide the owner with a copy of the contract and the attached notice of cancellation. An owner's use of the notice of cancellation is optional. This Section is in no way intended to limit the application of Subsection 5.59.020.D.

G. Until the mortgage modification consultant has complied with this Section, the owner may cancel the contract. (ORD-09-0017, § 1, 2009)

5.59.040 Violations.

It shall be a violation of this Chapter for a mortgage modification consultant to do any of the following:

A. Perform any service without a written contract.

B. Claim, demand, charge, collect or receive any compensation until after the mortgage modification consultant has fully performed each and every service the mortgage modification consultant contracted to perform or represented that he or she would perform.

C. Take any wage assignment, any lien of any type on real or personal property, or other security to secure the payment of compensation. That security shall be void and unenforceable.

D. Receive any consideration from any third party in connection with services rendered to an owner unless that consideration is fully disclosed to the owner in writing at the time the contract is entered into.

E. Acquire any interest in the residence from an owner with whom the mortgage modification consultant has contracted. Any interest acquired in violation of this subsection shall be void, provided that nothing herein shall affect or defeat the title of a bona fide purchaser or encumbrancer for value and without notice of a violation of this Chapter. This subsection may not be deemed to abrogate any duty of inquiry that exists as to rights or interests of persons in possession of a residence.

F. Take any power of attorney from an owner for any purpose.

G. Induce or attempt to induce any owner to enter into a contract that does not comply in all respects with Sections 5.59.020 and 5.59.030 of this Chapter. (ORD-09-0017, § 1, 2009)

5.59.050 Waiver.

Any waiver by an owner of any or all of the provisions of this Chapter shall be deemed void and unenforceable as contrary to public policy. Any attempt by a mortgage modification consultant to induce an owner to waive any or all of the rights provided by this Chapter shall be deemed a violation of this Chapter. (ORD-09-0017, § 1, 2009)

5.59.060 Owner's right of action.

In addition to all remedies allowed by law, an owner may bring an action against a mortgage modification consultant for any violation of this Chapter, and a mortgage modification consultant may be liable in a civil action for damages up to three (3) times the amount of actual damages, together with attorneys' fees and costs of litigation. (ORD-09-0017, § 1, 2009)

5.59.070 Liability of mortgage modification consultant for damages resulting from statements made, or acts by, a representative.

A. A mortgage modification consultant is liable for all damages resulting from any statement made or act committed by the mortgage modification consultant's representative in any manner connected with any of the following:

1. The mortgage modification consultant's performance, offer to perform, or contract to perform any service;

2. The mortgage modification consultant's receipt of any consideration or property from or on behalf of any owner;

3. Performance of any act prohibited by this Chapter.

B. "Representative" for the purposes of this Section means a person who in any manner solicits, induces, or causes any of the following:

1. Any owner to contract with a mortgage modification consultant.

2. Any owner to pay any consideration or transfer title to the residence threatened with foreclosure to the mortgage modification consultant.

3. Any member of the owner's family or household to induce or cause any owner to pay any consideration or transfer title to the residence to the mortgage modification consultant. (ORD-09-0017, § 1, 2009)

5.59.080 Statement of intent.

It is the intent of the City Council that the provisions of this Chapter shall apply to services for which an agreement to provide the services is made on or after the effective date of this Chapter.

5.59.090 Severability.

If any provision of the ordinance from which this Chapter derives, is found to be unconstitutional or otherwise invalid by any court of competent jurisdiction, that invalidity shall not affect the remaining provisions of this Chapter, which can be implemented without the invalid provisions, and to this end, the provisions of this Chapter are declared to be severable. (ORD-09-0017, § 1, 2009)

CHAPTER 5.60 PARADES AND SPECIAL EVENTS*

5.60.010 Definitions.

A. "City Manager" means the City Manager of the City of Long Beach and his/her designee.

B. "Departmental Services Charges" means the actual costs which a department of the City incurs in connection with activities for which a permit is required under this Chapter, including, but not limited to, costs associated with fire safety, traffic and/or pedestrian control, water safety, the closure of streets or intersections, the diverting of traffic, the salaries of City personnel involved in administration or coordination of City services for the event, the cost to the City to provide support personnel, equipment, materials and supplies, and related city costs such as employee overtime. Departmental Services Charges shall not include costs incurred by the City to provide police protection to those engaged in "expressive activity" as that term is defined in this Chapter.

C. "Expressive Activity" means conduct, the sole or principal object of which is the expression, dissemination or communication by verbal, visual, literary or auditory means of opinion, views or ideas. Expressive Activity includes, but is not limited to, public oratory and the distribution of literature.

D. "Event Organizer" means any person who conducts, manages, promotes, organizes, aids or solicits attendance at a special event.

E. "Event" includes a special event or an expressive activity.

F. "Person", as used in this Chapter, means any natural person, firm, association, joint venture, joint stock company, partnership, organization, club, company, corporation, business trust or manager, lessee, agent, servant, officer or employee or any of them, except where the context clearly requires a different meaning.

G. "Sidewalk" means that portion of a highway, other than the roadway, set apart by curbs, barriers, markings, or other delineation for pedestrian travel.

H. "Special Event" means:

1. Any organized formation, parade, procession, demonstration or assembly which may include persons, animals, vehicles, or any combination thereof, which is to assemble or travel in unison on any street, sidewalk or other public right-of-way owned or controlled by the City which does not comply with applicable traffic regulations, laws or controls; or

2. Any organized assemblage of seventy-five (75) or more persons at any public place, property or facility which is to gather for a common purpose under the direction or control of a person.

3. Examples of special events include, but are not limited to, concerts, parades, circuses, fairs, festivals, block parties, street fairs, community events, on the water activities (such as boat races), mass participation sports (such as marathons and other running events), athletic or sporting events, and community celebrations and observances conducted on public property or public rights of way.

I. "Special Event Permit" means a permit issued pursuant to this Chapter.

J. "Special Event Venue" means that area for which a special event permit has been issued.

K. "Street" means a way or place of whatever nature, publicly maintained and open to the public for purposes of vehicular travel. Street includes highways or alleys. (ORD-13-0005, § 1, 2013)

5.60.020 Permit—Required.

A. Except as provided by the terms of a permit, lease or contract which has been specifically authorized by the City Council, no person shall conduct or cause to be conducted, participate or engage in, hold, manage, permit or allow another to conduct a special event, in, on or upon any City street, sidewalk, alley, park, way, pier, public place, public property or public right-of-way which is owned or controlled by the City without first having obtained a written permit from the City Manager.

***Editor's note**—ORD-13-0005, § 1, adopted May 14, 2013, amended Ch. 5.60 in its entirety to read as herein set out. Former Ch. 5.60, §§ 5.60.010—5.60.150, pertained to similar subject matter, and derived from: Ord. C-6260; Ord. C-6580; Ord. C-6913; Ord. C-7250; Ord. C-7791, § 1, 2002; Ord. C-7934 § 7, 2004.

B. The City Manager may also approve and permit the sale or use of alcoholic beverages in public areas in connection with a special event. Any denial by the City Manager of approval for a permit to sell or use alcoholic beverages under this subsection may be appealed as provided in Section 5.60.120.

C. The City Manager is authorized to issue permits for special events pursuant to the procedures established in this Chapter.

D. The City Manager may condition any permit issued pursuant to this Chapter with reasonable requirements concerning the time, place or manner of holding such event as is necessary to coordinate multiple uses of public property, assure preservation of public property and public places, prevent dangerous, unlawful or impermissible uses, protect the safety of persons and property and to control vehicular and pedestrian traffic in and around the venue. Conditions may include, but are not limited to, the following:

1. The establishment of an assembly or disbanding area for a parade or like event;

2. The accommodation of an event's pedestrian and vehicular traffic, including restricting events to City sidewalks, portions of a City street, or other public right-of-way;

3. Conditions designed to avoid or lessen interference with public safety functions and/or emergency service access;

4. The number and type of vehicles, animals, or structures to be displayed or used in the event;

5. The inspection and approval by City personnel of stages, booths, floats, structures, vehicles or equipment to be used or operated in the event to ensure that such structures or vehicles are safely constructed and can be safely operated, and conform to the requirements of all applicable codes;

6. A cleaning deposit if the event includes using structures, displaying or using horses or other large animals, operation of water stations, food distribution or sales, beverage distribution or sales, and/or sale of other goods or services;

7. The provision and use of traffic cones or barricades;

8. The provision or operation of first aid stations or sanitary facilities, including handicap accessible sanitary facilities;

9. The provision of a waste management plan, and the clean up and restoration of the site of the event;

10. The use of sound amplification equipment, and restrictions on the amount of noise generated by motors and other equipment used in the course of the event;

11. The manner of providing notice of permit conditions to permit participants and those businesses or residents who may be directly affected by the conduct of the event;

12. The provision or use of emergency services;

13. The reasonable designation of alternate sites, times, dates, or modes for exercising expressive activity;

14. The obtaining of any and all business licenses or other necessary permits required by this Code for the sale of food, beverage or other goods or services at the event; and

15. The manner by which alcohol sales and service, if any, shall be conducted at the event.

E. Issuance of a special events permit pursuant to this Chapter does not obligate or require the City to provide City services, equipment or personnel in support of an event although the City Manager may provide such services, equipment or personnel if such are reasonably available and the event organizer makes provisions to reimburse the City for the cost thereof. (ORD-13-0005, § 1, 2013)

5.60.030 Exceptions to the special event permit requirement.

A. The following activities are exempt from the special event permit requirement:

1. Funeral processions by a licensed mortuary or funeral home;

2. Activities conducted by a governmental agency acting within the scope of its authority;

3. With the exception of organized fund raisers and block parties, events which take place on streets, sidewalks, or other public rights-of-way owned or controlled by the City including, but not

limited to, lawful picketing wherein applicable traffic regulations, laws or controls are complied with;

4. Filming activities governed by Chapter 5.61 of this Code;

5. Expressive activities. If practicable, the organizers should give notice to the City's Special Events Office at least four (4) hours prior to the event informing the City of the date and time of the event and provide an estimate of the approximate number of persons who will be participating. (ORD-13-0005, § 1, 2013)

5.60.040 Permit—Application.

A. The application for a permit under this Chapter to conduct or engage in any special event except for event(s) controlled by the Recreation Commission under Chapter 2.54 of this Code, which involves the use of city streets, alleys, sidewalks, parks, piers, ways, public property or public right-of-way owned or controlled by the City shall be filed with the City Manager.

B. Applications shall be filed not less than sixty (60) calendar days, nor more than one (1) year before the time it is proposed to conduct the special event, City may adjust, as needed, except that applications for block party permits shall be filed at least ten (10) working days prior to the event.

C. Except as otherwise applicable, the City Manager shall, within ten (10) business days, determine whether such application is or is not complete. Notwithstanding the City Manager's acceptance of a completed application, no event date shall be considered confirmed until a special event permit is issued.

D. Applications for special events for which a permit is required pursuant to this Chapter, may be filed in advance of the time periods set forth above but in no event more than one (1) year prior to the event date. If an applicant for an event desires to ensure the opportunity for an appeal to the City Council in accordance with subsection 5.60.120, the application shall be filed with the City Manager not less than thirty (30) calendar days, nor more than one (1) year before the time when it is proposed to conduct the event. Failure to file the application at least seventy-five (75) days prior to the proposed activity shall be deemed to be a waiver of an appeal to the City Council and in that event the decision of the City Manager shall be final and the event organizer or other aggrieved person may file or cause to be filed a petition for writ of mandate in state court regarding the validity of the City Manager's decision to grant or deny the application.

E. Each application shall be accompanied by a nonrefundable permit application fee in an amount established from time to time by resolution of the City Council. The City Manager shall have the authority, if good cause is shown and the nature of the application reasonably and feasibly lends itself to expedited processing, to consider, grant or deny any application for a permit which is filed later than the time prescribed in this Section.

F. Completed applications for a permit authorizing a special event shall be denied, approved, or conditionally approved by the City Manager within thirty (30) days after the City Manager determines that the application is complete.

G. Applications shall be upon a form which is furnished by or acceptable to the City Manager. Each application shall contain full, complete and detailed information including, but not limited to, the following:

1. The name, address and telephone number of the event organizer;

2. A certification that the event organizer shall be financially responsible for any City fees, departmental services charges or costs that may lawfully be imposed for the event;

3. The name, address and telephone number of the event organizer, if any, and the chief officer of the event organizer;

4. A statement of the purpose of the special event;

5. A statement of any fees to be charged to participants or spectators in connection with the special event;

6. The proposed location of the special event including a plot plan depicting the placement of temporary structures or facilities on public property or public rights-of-way;

7. The date and times when the special event is to be conducted;

8. The approximate times when assembly for, and disbanding of, the special event is to take place;

9. Provisions for first aid or emergency medical services, or both, based upon event risk factors;

10. Insurance information, if applicable;

11. Any other information reasonably required by the City Manager.

H. The City Manager may refer the application to such appropriate City departments as he/she deems necessary from the nature of the application for review, evaluation, investigation and recommendations by the departments regarding approval or disapproval of the application.

I. The City Manager shall issue a permit under this Chapter if the City Manager finds that the following criteria have been met:

1. The proposed use of the property is not governed by or subject to any other permit procedures provided elsewhere in this code or other applicable laws, rules or regulations;

2. The event will not substantially interrupt the safe and orderly movement of aerial or marine navigation;

3. The event will not substantially interrupt public transportation or other vehicular and pedestrian traffic in the area of its location;

4. The event will not conflict with construction or development in the public right of way or at a public facility;

5. The event will not require the diversion of public safety or other city employees from their normal duties so as to unreasonably reduce adequate levels of service to any other portion of the City;

6. The concentration of persons, animals or vehicles will not unreasonably interfere with the movement of police, fire, ambulance, and other public safety or emergency vehicles on the streets;

7. The event will not unreasonably interfere with any other special event for which a permit has already been granted or with the provision of City services in support of other scheduled events or scheduled government functions;

8. The event will not have an unmitigatible adverse impact upon residential or business access and traffic circulation in the same general venue area;

9. If the event is a marathon, it will not occur within one hundred eighty (180) calendar days of another marathon unless such event receives prior approval by the City Council;

10. The event will not adversely affect the City's ability to reasonably perform municipal functions or furnish city services;

11. The proposed use, event or activity will not have a significant adverse environmental impact;

12. In the case of a block party or other similar neighborhood event, the applicants have submitted a petition in favor of the event which has been signed by individuals representing at least sixty-six percent (66%) of the households on the block affected by the permit;

13. The provisions of Sections 5.60.070 and 5.60.080, if applicable, have been or will be satisfied. (ORD-13-0005, § 1, 2013)

5.60.050 Permit application—Fee.

A. Any permit fee, application fee, daily fee, and other additional fee for the use of City streets or other City owned or controlled property pursuant to this Chapter shall be established by the City Council by Resolution.

B. Permittee shall pay a permit fee, application fee, daily fee, and other additional fee(s) unless said fee(s) are funded or partially funded by action of the City Council by Resolution.

C. An indigent natural person who cannot apply for a permit because of an inability to pay the application fee due to such indigence shall not be required to pay the fee. Application for indigent status shall be made at the time of permit application and shall be accompanied by such relevant information and documentation as may be reason-

ably necessary to verify such status. For purposes of this Section 5.60.050 "indigent natural person" means:

1. A person who is receiving benefits pursuant to the Supplemental Security Income (SSI) and State Supplemental Payments (SSP) programs (Sections 12200 to 12205, inclusive, of the California Welfare and Institutions Code), the California Work Opportunity and Responsibility to Kids Act (Cal WORKs) program (Chapter 2, commencing with Section 11200 of Part 3 of Division 9 of the California Welfare and Institutions Code), the Food Stamp program (7 U.S.C. Sec. 2011, et seq.) or Section 17000 of the Welfare and Institutions Code;

2. A person whose monthly income is one hundred twenty-five percent (125%) or less of the current monthly poverty line annually established by the Secretary of Health and Human Services pursuant to the Omnibus Budget Reconciliation Act of 1981, as amended;

D. An organization in which a majority of its members meet the criteria for indigent status, as established in Subsection (c) of this Section, may also be eligible for application fee waiver. (ORD-13-0005, § 1, 2013)

5.60.060 Permit—Denial or revocation.

A. The City Manager may deny any application for a permit or revoke any permit if he/she finds any of the following:

1. The permitted event or activity will unreasonably disrupt traffic within the City; or

2. The permitted event or activity will unreasonably interfere with access to police or fire stations, or other public safety facilities; or

3. The location of the event or activity will cause undue hardship to adjacent businesses or residents; or

4. The permitted event or activity will require the diversion of so many public employees that allowing the event would unreasonably deny service to the remainder of the City; or

5. The application contains incomplete, false or misleading information; or

6. The City Manager is unable to make all of the relevant findings pursuant to Subsection 5.60.040.I; or

7. The applicant fails to comply with all terms of this Chapter including failure to remit all fees and deposits, or fails to provide proof of insurance and/or an indemnification agreement as required by this Chapter; or

8. The event is proposed for a time and place for which another event permit has been or will be issued to a prior applicant; or

9. The proposed area for the assembly or for the set up or dispersal of a parade or demonstration could not physically accommodate the number of participants expected to participate in the assembly, parade or demonstration; or

10. The parade, assembly or demonstration is proposed to take place on the roadway portion of any street in a commercial or retail zone between the hours of seven o'clock (7:00) A.M. and ten o'clock (10:00) A.M. or between the hours of four o'clock (4:00) P.M. and six-thirty o'clock (6:30) P.M., Monday through Friday, unless the parade, assembly or demonstration will occur on a national holiday; or

11. The parade, assembly or demonstration will violate any federal, state or local law or regulation; or

12. The applicant is legally incompetent to contract or to sue and be sued; or

13. The applicant or the person or entity on whose behalf the application for permit was made has on prior occasions damaged city property and has not paid in full for such damage, or has other outstanding and unpaid debts to the City; or

14. The proposed event would present an unreasonable danger to the health or safety of the applicant, spectators, city employees, or members of the public; or

15. The applicant has not complied or cannot comply with applicable licensure requirements, ordinances or regulations of the City concerning the sale, offering for sale, or distribution of any goods or services.

B. The City Manager may deny any application for a permit or revoke any permit if the City

Manager determines that the event sponsor or any agent, employee or associate of any such event organizer has willfully made any false or misleading statement in an application or has not fully complied with the requirements of this Chapter or has violated any of the provisions of this Chapter or the provisions of any other applicable law, rule or regulation.

C. An event organizer whose permit application is denied, or whose permit is revoked, pursuant to this Section shall be immediately notified of the action of denial or revocation, which notification shall contain a statement setting forth the reasons for said denial or revocation as well as a reference to the appeal provisions set forth in Section 5.60.120. Notification, pursuant to this Subsection, shall be deemed satisfied when the notice is placed, postage prepaid, in the United States mail, certified mail, return receipt requested, and addressed to the applicant at the address shown on the permit application. (ORD-13-0005, § 1, 2013)

5.60.070 Hold harmless.

A. Each Permittee shall execute a hold harmless agreement in a form approved by the City agreeing to defend, indemnify, and hold harmless the City against losses and liabilities incurred from the conduct of Permittee or its officers, employees, and agents.

B. Except for block parties, concurrent with the issuance of a permit under this Chapter and as a condition precedent to the effectiveness of the permit, the Permittee shall procure and maintain in full force and effect during the term of the permit insurance as prescribed in regulations issued by the City Manager pursuant to Section 2.84.040.

C. A claim for exclusion and alternative treatment under Subsection 5.60.070.B shall be filed with and at the same time as an application for a permit, and an agreement or proof of insurance, as applicable, shall be provided prior to permit issuance. The City Manager or his/her designee may require such proof and documentation as he/she may deem reasonably necessary to verify the constitutionally protected status of the parade or event and the applicability of Subsection 5.60.070.B. (ORD-13-0005, § 1, 2013)

5.60.080 Departmental Services Charge.

A. As a condition to permitting a special event, Permittee may be required to post a security deposit to cover any departmental service charges incurred.

B. In addition to the payment of the nonrefundable permit application fee or daily fee, a Permittee shall pay the City for all City departmental services charges incurred in connection with or due to the Permittee's activities under the permit. Additionally, if City property is destroyed or damaged by reason of Permittee's use, event or activity, the Permittee shall reimburse the City for the actual replacement or repair cost of the destroyed or damaged property.

C. City departments shall submit the final invoices and billings for departmental services charges to the City Manager or no later than twenty (20) business days after the event giving rise to the issuance of a permit.

D. A Permittee who claims inability to pay departmental service charges due to indigency shall have these charges waived in accordance with the indigency guidelines below. Application for indigent status shall be made at the time of permit application and shall be accompanied by such relevant information and documentation as may, in the opinion of the City Manager or designee, be reasonably necessary to verify such status. For purposes of this Section 5.60.080, "Indigent Natural Person" means:

1. A person who is receiving benefits pursuant to the Supplemental Security Income (SSI) and State Supplemental Payments (SSP) programs (Sections 12200 to 12205, inclusive, of the California Welfare and Institutions Code), the California Work Opportunity and Responsibility to Kids Act (CalWORKs) program (Chapter 2, commencing with Section 11200 of Part 3 of Division 9 of the California Welfare and Institutions Code), the Food Stamp program (7 U.S.C. Sec. 2011, et seq.) or Section 17000 of the Welfare and Institutions Code;

2. A person whose monthly income is one hundred twenty-five percent (125%) or less of the current monthly poverty line annually established by the Secretary of Health and Human Services pursuant to the Omnibus Budget Reconciliation Act of 1981, as amended.

E. An organization in which a majority of the members meet the criteria for indigent status, as established in Subsection (D) of this Section, may also be eligible for waiver of departmental service charges. (ORD-13-0005, § 1, 2013)

5.60.090 Refunds.

If a Permittee is unable to hold or conduct a use, event or activity because of inclement weather or due to some other cause not within the Permittee's control, and the Permittee submits a written request for the refund of such fees to the City Manager's office within ten (10) days after the date that the use, event or activity was to have been held or conducted, the City Manager may authorize the refund of the fees or a pro rata portion thereof, except for actual costs incurred by the City at the time of cancellation and the nonrefundable application fees, which have been paid by the Permittee to the City in connection with a permit issued under this Chapter. (ORD-13-0005, § 1, 2013)

5.60.100 Interfering with activity prohibited.

It is unlawful for any person to obstruct, impede or interfere with any authorized assembly, person, vehicle or animal participating in a special event for which a special event permit has been issued. (ORD-13-0005, § 1, 2013)

5.60.110 Penalty for violation.

Any person who intentionally violates any of the provisions of this Chapter shall be guilty of a misdemeanor. (ORD-13-0005, § 1, 2013)

5.60.120 Appeals.

A. Except as provided in this Chapter, any person aggrieved by the issuance, denial or revocation of a permit pursuant to this Chapter may appeal such decision to the City Council by filing a written notice of such appeal with the City Clerk within ten (10) business days of the decision of the City Manager giving rise to said appeal. Such appeal shall set forth, with particularity, the facts upon which the appeal is being made. The City Council shall, within sixty (60) days of receiving such notice of appeal, hold a hearing. At such hearing, the aggrieved party is entitled to be heard and present evidence on his/her behalf. The City Council shall determine the merits of the appeal, and the City Council's determination to grant or deny the appeal shall be final. When the necessity for a timely response so requires, the City Council may refer to the matter to a Hearing Officer in accordance with the provisions of Chapter 2.93. (ORD-13-0005, § 1, 2013)

5.60.130 Rules and regulations.

The City Manager is authorized to promulgate additional policies, rules and regulations that are consistent with and that further the provisions set forth within this Chapter and the provisions of law that pertain to the conduct and operation of a special event. (ORD-13-0005, § 1, 2013)

5.60.140 Unlawful to use city name without authorization.

It is unlawful for any event organizer to use in the title of the event the words "The City of Long Beach" or "City of Long Beach", or facsimile of the seal or logo of the City of Long Beach without City's written authorization. (ORD-13-0005, § 1, 2013)

CHAPTER 5.61 FILMING ACTIVITIES*

5.61.010 Definitions.

A. "Motion Picture, Television, Still Photograph", as used in this Chapter, means and includes all activity attendant to staging or shooting commercial motion pictures, television shows or programs, and commercials.

***Editor's note**—ORD-13-0006, § 1, adopted May 14, 2013, amended Ch. 5.61 in its entirety to read as herein set out. Former Ch. 5.61, §§ 5.61.010—5.61.090, pertained to similar subject matter, and derived from: Ord. C-7250 § 2 (part), 1994; Ord. C-7934 § 8, 2004.

B. "Charitable films", as used in this Chapter, means commercials, motion pictures, television, videotapes, or still photograph produced by a non-profit organization, which qualifies under section 501(c)(3) of the Internal Revenue Code as a charitable organization. No person, directly or indirectly, shall receive a profit from the marketing and production of the film or from showing the films, tapes or photos.

C. "News Media", as used in this Chapter, means the filming or videotaping for the purpose of spontaneous, unplanned television news broadcast by reporters, photographers or cameramen. (ORD-13-0006, § 1, 2013)

5.61.020 Permit required.

No person shall use any City street, alley, sidewalk, park, pier, way or other public property owned or controlled by the City for the purpose of taking commercial motion pictures or television pictures or commercial still photography without first applying for and receiving a permit from the City Manager or his/her designee, provided that the provisions of this Chapter shall not apply to or be construed to affect:

A. Reporters, photographers or cameramen in the employ of a newspaper, news service, or similar entity engaged in on the spot broadcasting of news events concerning those persons, scenes or occurrences which are in the news and of general public interest; or

B. The filming or videotaping of Motion Pictures solely for private family use; or

C. Charitable films: projects which qualify under section 501(c)(3) of the Internal Revenue Code. (ORD-13-0006, § 1, 2013)

5.61.030 Permit application.

A. An application for filming activity under this Chapter must be completed and filed at least three (3) working days prior to the first day of filming proposed.

B. Each such application must include:

1. The name of the owner, the address and telephone number of the place at which the activity is to be conducted;

2. The specific location at such address or place;

3. The inclusive hours and dates such activity will transpire, including, but not limited to the preparation and clean-up of the location;

4. A general statement of the character or nature of the proposed filming activity;

5. The name, address and telephone number of the person or persons in charge of such filming activity;

6. The exact number of personnel to be involved;

7. Use of any animals or pyrotechnics;

8. The exact amount/type of vehicles/equipment to be involved; and

9. Such additional information as the City Manager or his/her designee may reasonably require.

C. The City Manager or his/her designee shall refer the application for review as provided in Section 5.60.040 of this Code.

D. The City Manager or his/her designee shall grant, deny or revoke the permit in accordance with Subsection 5.60.040(I) or Section 5.60.060 of this Code.

E. The provisions of Subsection 5.60.040(E) shall apply to all permits issued under this Chapter. (ORD-13-0006, § 1, 2013)

5.61.040 Permit application fees.

The provisions of Subsections 5.60.050(A) and (B) of this Code shall apply to every application made under this Chapter. (ORD-13-0006, § 1, 2013)

5.61.050 Rules and regulations.

A. Upon twenty-four (24) hours' notice by the applicant, the City Manager or designee shall have the power, upon a showing of good cause, to change the date for which the permit has been issued provided established limitations are complied with in respect to time and location.

B. Rules. The City Manager or designee is authorized and directed to promulgate rules and regulations, subject to approval by resolution of the City Council, governing the form, time, and

location of any film activity set forth within the City. He/she shall also provide for the issuance of permits. The rules and regulations shall be based upon the following criteria:

1. The health and safety of all persons;

2. Avoidance of undue disruption of all persons within the affected area;

3. The safety of property within the City; and

4. Traffic congestion at particular locations within the City. (ORD-13-0006, § 1, 2013)

5.61.060 Reimbursement for costs.

Notwithstanding any other provisions of this Chapter, any permittee for a filming activity shall reimburse the City for all costs incurred by City, the amount of which shall be determined by the City Manager or his/her designee, or any City personnel or equipment provided to the applicant for the purpose of assisting or providing security or protection to the applicant for activities conducted under the permit. The provisions of Subsections 5.60.080(A) and 5.60.080(B) shall apply. (ORD-13-0006, § 1, 2013)

5.61.070 General permit conditions.

Any applicant granted a permit pursuant to this Chapter shall comply with all of the following conditions:

A. An applicant will be required to submit a permit request at least three (3) working days prior to the date on which such person desires to conduct an activity for which a permit is required. If such activity interferes with traffic or involves potential public safety hazards, an application may be required at least ten (10) working days in advance.

B. The permittee shall conduct operations in an orderly fashion with continuous attention to the storage of equipment not in use and the cleanup of trash and debris. The area used shall be cleaned of trash and debris upon completion of shooting at the scene and restored to the original condition before leaving the site.

C. An applicant is required to obtain the property owner's permission, consent, and/or lease for use of property not owned or controlled by the City.

D. If the applicant must park equipment, trucks, and/or cars in zones that will not permit it, temporary "No Parking" signs must be posted by the City. The applicant must also obtain permission to string cable across sidewalks, or from a generator to a service point.

E. For filming that would impair traffic flow, an applicant must use City law enforcement personnel and comply with all traffic control requirements deemed necessary by the City.

1. An applicant shall furnish and install advance warnings signs and any other traffic control devices in conformance with the manual of traffic controls, State of California, Department Of Transportation. All appropriate safety precautions must be taken;

2. Traffic may be restricted to one (1) twelve-foot (12') lane of traffic and/or stopped intermittently. The period of time that traffic may be restricted will be determined by the City, based on location;

3. Traffic shall not be detoured across a double line without prior approval of the appropriate City departmental representative;

4. Unless authorized by the City, the camera cars must be driven in the direction of traffic and must observe all traffic laws;

5. Any emergency road work or construction by City crews and/or private contractors, under permit or contract to the appropriate department, shall have priority over filming activities.

6. Street closure may be restricted to one (1) twelve-foot (12') lane of traffic and/or stopped intermittently. The period of time that traffic may be restricted will be determined by the City, based on location.

F. When parking in a parking lot, an applicant may be billed according to the current rate schedule established by the City. In order to assure the safety of citizens in the surrounding community, access roads to beaches, which serve as emergency service roads, must never be blocked. No relocation, alteration, or moving of City-owned structures or property will be permitted without prior approval. (ORD-13-0006, § 1, 2013)

5.61.080 Hold harmless.

A. The provisions of Section 5.60.070 shall apply to every permit issued under this Chapter.

B. Every applicant/permittee shall provide insurance and bonds as prescribed in regulations issued by the City Manager pursuant to Section 2.84.040. (ORD-13-0006, § 1, 2013)

5.61.090 Appeals.

The proceedings set forth in Section 5.60.120 shall apply to any applicant or permittee aggrieved by an adverse decision under this Chapter 5.61. (ORD-13-0006, § 1, 2013)

5.61.095 Interference with special event or film activity is prohibited.

It shall be unlawful for any person to interfere with, disrupt or impede a permitted special event or permitted film activity as specified herein. While not limited to, the following acts are prohibited by this section when done for the purpose of or with knowledge that an effect thereof is to interfere with or disrupt the ability of the permittee to carry on the special event or film activity:

A. To block, obstruct or impede the passage of participants, vehicles or animals in the special event or filming activity;

B. When not participating in the special event or filming activity with the permission of the permit holder, to walk, run, operate a skateboard, ride any wheeled vehicle or rollerskate through, between, with or among the participants, vehicles or animals in the special event or filming activity, except in cases of bona fide emergency;

C. To drop, roll, throw, toss, squirt or propel any gaseous, liquid, semisolid or solid substance or object toward or among the participants, vehicles or animals in the special event or filming activity;

D. To grab, take hold of, strike, hit, pull or push any participant, vehicle or animal in the special event or filming activity, or to mount any vehicle in the special event or filming activity, except with the permission of the permittee or in cases of bona fide emergency;

E. To enter upon the grounds, playing field, stage, floor, or any other area set apart for the participants, performers, officials, attendants or service personnel, unless authorized so to do by usher, by public safety personnel, or by an authorized representative of the sponsor of the special event or filming activity. (ORD-13-0006, § 1, 2013)

5.61.095.5 Violation—Penalty.

Any person violating any of the provisions of this Chapter is guilty of a misdemeanor and upon conviction thereof shall be fined in an amount not exceeding $1,000.00 or imprisonment in the county jail for a period not to exceed six (6) months, or by both such fine and imprisonment or may be deemed guilty of an infraction punishable by a fine of not more than two hundred-fifty dollars ($250.00). Each person may be deemed guilty of a separate offense for every day during any portion of which any violation is committed or permitted. (ORD-13-0006, § 1, 2013)

CHAPTER 5.62 PATROL SYSTEMS*

5.62.010 Applicability.

This Chapter shall apply to "private patrol operators" as that term is defined in California Business and Professions Code section 7582.1. (Ord. C-7423 § 23, 1996: Ord. C-6260 § 1 (part), 1986)

5.62.020 Permit and license required.

No person shall practice, engage in or carry on the business of a patrol system in the City without having first met the following requirements:

A. The person has paid any business license tax required pursuant to Chapter 3.80 herein; and

B. The person holds a valid private patrol operator's license in accordance with the provisions of California Business and Professions Code section 7582, and exhibits a copy of said license. (Ord. C-7423 § 23, 1996: Ord. C-6260 § 1 (part), 1986)

***State law reference**—Provisions on local regulation of private patrol operators, Bus. and Prof. C. §§ 7514.2 and 7523.

CHAPTER 5.64 PAWNBROKERS AND SECONDHAND DEALERS*

5.64.010 Definitions.

The following words as used in this Chapter shall have the meanings set forth in this Section unless otherwise clearly apparent from the context:

A. "Pawnshop" or "pawn office" means and includes any room, store or place in the City in which the business of a pawnbroker is engaged in, carried on or conducted.

B. "Pawnbroker" means and includes any person, other than banks, trust companies, or bond brokers, who may otherwise be regulated by law and authorized to deal in commercial papers, shares of stock, bonds and other certificates of value, who keeps a pawn office, or engages in, or carries on the business of receiving jewelry, precious stones, valuables, firearms, clothing or personal property, or any other article or articles in pledge for loans, or as security, or in pawn for the repayment of monies, and exacts an interest for such loans, or who purchases articles or personal property and agrees to resell such articles so purchased to the vendors thereof, or their assigns, at prices agreed upon at or before the time of such purchases, respectively.

C. "Secondhand dealer" means any person, co-partnership, firm, or corporation engaged in or conducting the business of buying, selling, trading, taking in pawn, accepting for sale on consignment, accepting for auctioning, or auctioning secondhand tangible personal property. (ORD-13-0026, § 1, 2013; Ord. C-7423 § 24, 1996: Ord. C-6260 § 1 (part), 1986)

5.64.020 Permit—Required.

No person shall engage in, carry on, or conduct the business of a pawnbroker or secondhand dealer, without first having obtained a permit in accordance with this Title, and complying with any and all requirements and regulations as contained and set forth in this Chapter. (Ord. C-7423 § 24, 1996: Ord. C-6260 § 1 (part), 1986)

5.64.030 Permit—Application.

A. Each person, before obtaining a permit to carry on the business of a pawnbroker or secondhand dealer, shall make a written application to, and upon forms furnished by the Chief of Police, which shall be signed by the applicant. In addition to any other information which may reasonably be required by the Chief of Police, the application shall show the true name of the applicant, his/her fictitious name or names, if any, his/her age, his/her present address in the City or elsewhere, the name under which the applicant conducted any similar business, if any, and the place of his/her residence at such time within twelve (12) months preceding the date of the application. At the time the application is filed with the Chief of Police, the applicant shall be photographed and fingerprinted by the Police Department.

In the event the applicant is a corporation, an officer of the corporation shall furnish the information required above, and, in addition, shall furnish the names of all other corporate officers.

B. The Chief of Police shall issue the permit to the applicant or deny the application within sixty (60) days from the date thereof. Grounds for denial of the application shall be:

1. The applicant has had a previous license or permit to engage in the business of a pawnbroker or secondhand dealer revoked or suspended by any jurisdiction;

2. The applicant, based upon his/her past penal record, would be a poor risk in the business of pawnbroker or secondhand dealer. (Ord. C-7423 § 24, 1996: Ord. C-6260 § 1 (part), 1986)

5.64.040 Permit—Fee—Bond.

A. Every person maintaining, carrying on or conducting any business for which a permit is required by the provisions of this Chapter shall

*__State law references__—Provisions on pawnbrokers, Fin. C. §§ 21000-21209; provisions on secondhand goods, Bus. and Prof. C. §§ 21500-21639.

[The next page is CD5:101]

pay a permit fee in an amount established by the City Council by resolution adopted pursuant to Section 5.04.040.

B. Any person desiring to conduct on the business of a pawnbroker shall file with the City a faithful performance bond as prescribed in regulations issued by the City Manager pursuant to Section 2.84.040.

C. No permit issued under the provisions of this Chapter shall be transferable and no person shall conduct either the business of a pawnbroker or a secondhand dealer under the permit of another person, except as provided in this Chapter. (Ord. C-7934 § 9, 2004; Ord. C-7423 § 24, 1996: Ord. C-6325 § 20, 1986: Ord. C-6260 § 1 (part), 1986)

5.64.050 Permit—Renewal.

Upon the expiration of any permit issued under the provisions of this Chapter to a pawnbroker or secondhand dealer, the holder thereof shall be entitled to a new permit for the ensuing year without making a new application and obtaining a new permit therefor upon the payment of the required permit fee; provided that at the time of tendering the required permit fee there are no permit revocation proceedings pending against the permittee; and provided further that a bond, as provided for in Section 5.64.040, has been furnished. (Ord. C-7423 § 24, 1996: Ord. C-6260 § 1 (part), 1986)

5.64.070 Reports—Goods deposited.

A. Every pawnbroker and secondhand dealer shall, at the time of purchase or pledge of any property, make out on forms, to be obtained from the Chief of Police for that purpose, a full, true and complete report of all goods or things received on deposit, pledged or purchased by him/her, and such report shall show the hour of the day each such article is received and the true name and address, as nearly as the same is known to, or can be ascertained by, the pawnbroker or secondhand dealer, and the personal signature of the person or persons by whom the article was left on deposit or pledged or sold, together with a description of the person or persons as may be required by the Chief of Police; that such report shall give also the number of the pawn ticket, the amount loaned or the amount of the purchase, as the case may be, and a complete description of each article left on deposit or pledged or purchased. If any article so left on deposit or pledged or purchased bears any number, word or initial thereon or contains any settings of any kind, the description of the article shall contain the number, word or initial and shall show the number of settings and the number of each kind thereof.

B. Every pawnbroker and secondhand dealer shall, on each day before the hour of ten a.m., deliver to the Chief of Police the original of the reports made out during the day preceding the filing of the reports.

C. No person shall use a fictitious name or address when selling, pledging or leaving any property on deposit as provided in this Chapter. (Ord. C-7423 § 24, 1996: Ord. C-6260 § 1 (part), 1986)

5.64.080 Reports—Goods repledged or hypothecated.

No person carrying on or conducting the business of a pawnbroker shall repledge or hypothecate any article that he/she has in his/her possession and received in the due course of his/her business, for the purpose of borrowing money or otherwise, without making a full and true report to the Chief of Police, as required by Section 5.64.070, of such articles so repledged and hypothecated, the person to whom so pledged or hypothecated, and the amount borrowed on same, together with the name of the original pledger. (Ord. C-7423 § 24, 1996: Ord. C-6260 § 1 (part), 1986)

5.64.090 Reports—Filing.

All daily reports to be filed with the Chief of Police as required in this Chapter shall be kept on file by the Chief of Police, which reports shall be open to inspection only by members of the Police Department or upon an order of a court of competent jurisdiction made for that specific purpose. (Ord. C-7423 § 24, 1996: Ord. C-6260 § 1 (part), 1986)

5.64.100 Reports—Confidential.

The Chief of Police shall file all reports received pursuant to the terms of this Chapter, and the same shall be open to inspection only by members of the Police Department or upon an order of a court of competent jurisdiction made for that purpose, and every report and record required by the terms of this Chapter to be filed or kept shall be written or printed entirely in the English language in a clear and legible manner. (Ord. C-7423 § 24, 1996: Ord. C-6260 § 1 (part), 1986)

5.64.110 Reports—Record.

Every person engaged in the business of a pawnbroker or secondhand dealer in the City shall keep a complete copy of the reports required by this Chapter, and every such record and all goods and things pledged to, or purchased by, or received by any such pawnbroker or secondhand dealer shall be open at all times during business hours to the inspection of the Chief of Police or any Police Officer. (Ord. C-7423 § 24, 1996: Ord. C-6260 § 1 (part), 1986)

5.64.120 Inspection.

The premises of all pawnshops and secondhand dealers shall, at all times when open or being prepared for public sale, be subject to police inspection by members of the Police Department in the pursuit of their official duties, and no person, shall hinder or obstruct any such authorized Police Officer in making such inspection. Premises, as used in this Section, means that area which is used to display or store the goods or personal property offered for sale to the public. (Ord. C-7423 § 24, 1996: Ord. C-6260 § 1 (part), 1986)

5.64.150 Sale of items within thirty days prohibited.

A. No pawnbroker or secondhand dealer shall sell or otherwise dispose of any article, goods or other thing within thirty (30) days after the purchase or receipt thereof.

B. No pawnbroker or secondhand dealer shall sell or otherwise dispose of any article, goods or other thing within thirty (30) days of the date such articles are suspended from sale under the provisions of this Chapter unless sooner released by the Chief of Police. (Ord. C-7423 § 24, 1996: Ord. C-6260 § 1 (part), 1986)

5.64.170 Accepting goods from minors prohibited.

No pawnbroker or secondhand dealer shall purchase or take as a pledge, or otherwise, any goods offered him/her from any minor under the age of eighteen (18) years. (Ord. C-7423 § 24, 1996: Ord. C-6260 § 1 (part), 1986)

CHAPTER 5.65 SWAP MEETS AND DISPLAY SELLING EVENTS

5.65.010 Definitions.

A. "Selling space", "stall" or "booth" shall be defined as an area not exceeding twenty feet (20') by twenty feet (20') assigned to swap meet vendors for displaying property and conducting business.

B. "Swap meet" means and includes any event, except for a display/selling event as defined in this Chapter, at which two or more persons offer new or secondhand personal property for sale or exchange and where a fee is charged for the privilege either of offering or displaying such property for sale or exchange and for admission of prospective buyers to the area where the property is offered or displayed for sale or exchange.

C. "Swap meet operator" means every person engaged in the business of conducting, managing or maintaining a swap meet. The swap meet operator shall be responsible for the coordination of all aspects of the swap meeting including solicitation of vendors, assignment of vendor selling spaces, crowd control on the premises, controlling parking on the grounds and reporting to the Police Department as provided by this Code. The term swap meet operator does not include a person who owns the land on which such event occurs if he/she has no control over the event and has no personal knowledge of any facts arising from the event which constitute a violation of any provisions of this Chapter.

D. "Swap meet vendor" means and includes any person who in this City engages in or conducts the business of selling or exchanging as owner or consignee, new or secondhand goods or any other goods at a swap meet.

E. "Display/selling event" means and includes any event open to the public at which two or more persons sell, offer for sale, exchange, display, or provide personal services and where a fee may or may not be charged for privileges and where a fee may or may not be charged to prospective buyers. Display/selling events shall include the following:

1. New personal property, plants, flowers, art and craft items, food or food products except a farmer's market;

2. New vehicles, boats, aircraft, trailers, accessories or parts;

3. Business equipment and computers;

4. Animals, pets or reptiles;

5. Antiques, collectibles, coins and stamps;

6. Used vehicles, boats, aircraft, trailers, accessories or parts.

F. "Display/selling event promoter" means any person, partnership, organization or corporation who controls, manages, conducts or otherwise administers a display/selling event.

G. "Display/selling event vendor" means any person, partnership, organization, or corporation who exchanges, displays, sells or offers for sale any items described in the definition of a display/selling event or who provides a personal service.

H. "Display/selling booth/space" means an area for displaying, selling, offering for sale or exchanging any item described in Subsection 5.65.010.E or for providing a personal service. (Ord. C-7423, § 32, 1996)

5.65.020 Permit—Required.

No person shall engage in, carry on, or conduct the business of a swap meet operator or display/selling event promoter for an event described under Subsections 5 and 6 under Subsection 5.65.010.E without first having obtained a permit in accordance with this Title, and complying with any and all requirements and regulations as contained and set forth in this Chapter. (Ord. C-7423 § 32, 1996)

5.65.030 Permit—Application.

A. Each person, before obtaining a permit to carry on the business of a swap meet operator or display/selling event promoter, who conducts events as set forth in Subsections 5 and 6 under Subsection 5.65.010.E, shall make a written application to, and upon forms furnished by the Director of Financial Management, which shall be signed by the applicant. In addition to any other information which may reasonably be required by the Director of Financial Management, the application shall show the true name of the applicant, his/her fictitious name or names, if any, his/her age, his/her present address in the City or elsewhere, the name under which the applicant conducted any similar business, if any, and the place of his/her residence at such time within twelve (12) months preceding the date of the application. At the time the application is filed with the Director of Financial Management, the applicant shall be photographed and fingerprinted by the Police Department.

In the event the applicant is a corporation, an officer of the corporation shall furnish the information required above, and, in addition, shall furnish the names of all other corporation officers.

B. The Director of Financial Management shall issue the permit to the applicant or deny the application within sixty (60) days from the date thereof. Grounds for denial of the application shall be:

1. The applicant has had a previous license or permit to engage in the business of a swap meet operator or display/selling event promoter revoked or suspended by any jurisdiction.

2. The applicant, based upon his/her past penal record, would be a poor risk in the business of swap meet operator or display/selling event promoter.

C. Each swap meet vendor shall register with the swap meet operator prior to the vendor's doing business on the operator's premises. The registration form must be approved by the Director of

Financial Management and shall provide at least the following information: name and address of vendor; vehicle license number; date, positive identification such as driver's license number, or bona fide governmental identification. The form shall consist of four (4) parts with the original retained by the Department of Financial Management, a copy sent to the Police Department, one (1) copy retained by the swap meet operator and one (1) copy retained by the swap meet vendor. The swap meet operator shall retain his/her copy of the registration form for a period of three (3) years.

D. Each display/selling event vendor for an event described in Subsections 5 and 6 under Subsection 5.65.010.E shall register with the event promoter. The registration form shall provide the following information: name and address of vendor, business name, business address if different from residence, phone number, date and driver's license number and the vendor's California seller's permit number (State Board of Equalization sales tax number), if any. This registration form shall be submitted to the Department of Financial Management not more than ten (10) days after the event. (Ord. C-7423 § 32, 1996)

5.65.040 Permit—Fee—Bond.

A. Every person maintaining, carrying on or conducting any business for which a permit is required by the provisions of this Chapter shall pay a permit fee in an amount established by the City Council by resolution adopted pursuant to Section 5.04.040.

B. Any person desiring to carry on the business of a swap meet operator shall file with the City a faithful performance bond in the sum of five thousand dollars ($5,000.00), said bond to be in full force and effect during the life of the permit under which the person is carrying on the business, executed by a surety company authorized to do business as such in the State. The bond shall be approved by the City Attorney as to form and the City Manager as to sufficiency. The bond requirement provided in this Section for a swap meet operator may be waived for bona fide nonprofit organizations under this Code with approval of the City Manager.

C. No permit issued under the provisions of this Chapter shall be transferable and no person shall conduct either the business of a swap meet operator or display/selling event promoter under the permit of another person, except as provided in this Chapter. (Ord. C-7423 § 32, 1996)

5.65.050 Hours—Swap meets.

No swap meet vendor shall sell or exchange any goods within the City between the hours of six p.m. and seven a.m. of the following day. (Ord. C-7423 § 32, 1996)

5.65.060 Reports—Filing.

All daily reports to be filed with the Chief of Police as required in this Chapter shall be kept on file by the Chief of Police, which reports shall be open to inspection only by members of the Police Department or upon an order of a court of competent jurisdiction made for that specific purpose. (Ord. C-7423 § 32, 1996)

5.65.070 Reports—Confidential.

The Chief of Police shall file all reports received pursuant to the terms of this Chapter, and the same shall be open to inspection only by members of the Police Department or upon an order of a court of competent jurisdiction made for that purpose, and every report and record required by the terms of this Chapter to be filed or kept shall be written or printed entirely in the English language in a clear and legible manner. (Ord. C-7423 § 32, 1996)

5.65.080 Inspection.

The premises of all display/selling events and swap meets shall, at all times when open or being prepared for public sale, be subject to police inspection by members of the Police Department in the pursuit of their official duties, and no person shall hinder or obstruct any such authorized Police Officer in making such inspection. Premises, as used in this Section, means that area which is used to display or store the goods or personal property offered for sale to the public. (Ord. C-7423 § 32, 1996)

5.65.090 Swap meet—Security—Evidence of authority to sell.

A. Each swap meet operator and display/selling event promoter for an event described in Subsections 5 and 6 under Subsection 5.65.010.E, as a condition to being granted a permit to carry on the business of a swap meet or display/selling event, will be required to provide a reasonable number of private security personnel as approved by the Chief of Police.

B. It shall be the duty of each swap meet or display/selling event vendor selling or offering goods for sale or exchange to have adequate evidence of authority to sell such goods.

C. As used in this Chapter, "adequate evidence of authority to sell" is evidence from which a reasonable person would conclude that the person presenting the evidence is the owner of the item he/she is attempting to sell or is the agent of the owner and is authorized by the owner to sell the item. (Ord. C-7423 § 32, 1996)

5.65.100 Swap meet—List of items—Lack of authority to sell.

A. Each swap meet operator and display/selling event promoter for an event described in Subsections 5 and 6 of Subsection 5.65.010.E shall require swap meet and display/selling event vendors who propose to sell or exchange identifiable personal property to file a list of all such property, including all identifying information, on forms approved by the Chief of Police. The operator shall produce the list upon demand of any Peace Officer and shall further submit all such lists to the Chief of Police prior to the close of the next business day.

B. Whenever the circumstances of possession of an item by the swap meet or display/selling event vendor would reasonably lead a prudent person to conclude that the swap meet or display/selling event vendor lacks adequate evidence of authority to sell, the Chief of Police, or his/her designated representative, shall mark such item with an identifying tag and the item shall thereafter be suspended from sale or exchange for a period of not to exceed thirty (30) days. The item shall be retained during the thirty (30) day period by the swap meet or display/selling event vendor. (Ord. C-7423 § 32, 1996)

5.65.110 Sale of items within thirty days prohibited.

A. No swap meet or display/selling event vendor for an event described in Subsections 5 and 6 under Subsection 5.65.010. E shall sell or otherwise dispose of any article, goods or other thing within thirty (30) days after the purchase or receipt thereof.

B. No swap meet or display/selling event vendor shall sell or otherwise dispose of any article, goods, or other thing within thirty (30) days of the date such articles are suspended from sale under the provisions of this Chapter unless sooner released by the Chief of Police. (Ord. C-7423 § 32, 1996)

5.65.120 Swap meet—Minor vendors prohibited.

No swap meet operator shall permit a person under the age of eighteen (18) years to register as a swap meet vendor. A swap meet vendor may, however, employ one (1) or more persons under the age of eighteen (18) years as salespersons. (Ord. C-7423 § 32, 1996)

CHAPTER 5.66 PEDDLERS

5.66.010 Peddling - defined.

The words "peddle" or "peddling" mean and include traveling or going from door to door or building to building basis between residences or businesses, displaying or selling any goods or food by the taking of an order, and concurrently making of a delivery and shall also mean and include the transportation of any goods, wares or merchandise upon any street-approved vehicle or by any means whatsoever, which goods have not been sold to or ordered by a buyer prior to such transportation and which goods are intended to be offered for sale and delivery to members of the public. However, peddle or peddling shall not mean or include the delivery of goods by a person en-

gaged in the business of selling such goods from a premises in the City or elsewhere and which goods have been ordered to be so delivered, prior to such delivery; provided, however, that peddle or peddling includes the delivery of goods at the time of or within a period of two (2) hours from the time of obtaining such order for delivery, unless such order is placed by the buyer at a place of business of the seller. (ORD-24-0002 § 7, 2024; Ord. C-7423 § 25, 1996: Ord. C-6260 § 1 (part), 1986)

5.66.015 Reserved.

Editor's note—ORD-24-0002 § 7, adopted Jan. 23, 2024, deleted § 5.66.015 entitled "Mobile food preparation vehicles," which derived from: ORD-11-0030, § 2, 2011; and Ord. C-7423 § 25, 1996.

5.66.020 Operating conditions.

No person engaged in the business of peddling shall make any noise as prohibited by Long Beach Municipal Code Section 5.46.110. (ORD-24-0002 § 7, 2024; Ord. C-7423 § 25, 1996: Ord. C-6325 § 21, 1986: Ord. C-6260 § 1 (part), 1986)

5.66.030 Peddling near schools.

No person shall peddle from Monday morning at eight (8:00) a.m. until Friday evening at five (5:00) p.m. between the hours of seven (7:00) a.m. and five (5:00) p.m. of said days within one (1) block of any school grounds in the City, except that the provisions of this Section shall not apply to merchants having stores within the prohibited districts or to vegetable or fruit vehicles peddling vegetables or fruits to residences, or to delivery vehicles soliciting or delivering goods to residences within the districts. (ORD-24-0002 § 7, 2024; Ord. C-7423 § 25, 1996: Ord. C-6260 § 1 (part), 1986)

5.66.040 Hours in residential districts.

A. No person shall peddle or solicit a contribution to any charitable cause whatsoever, in any area of the City which is zoned for residential use, from eight (8:00) p.m. until nine (9:00) a.m. of the following day.

B. No minor under the age of eighteen (18) shall peddle, or solicit a contribution to any charitable cause whatsoever, in any area of the City which is zoned for residential use, from five (5:00) p.m. until nine (9:00) a.m. the following day, during Pacific Standard Time, and from seven (7:00) p.m. until nine (9:00) a.m. the following day, during Pacific Daylight Time, unless that minor is accompanied by a person over the age of eighteen (18).

C. The provisions of this Section shall not apply to the solicitation or obtaining of subscriptions or advertising for, or sale of newspapers published for the dissemination of local or telegraphic news and intelligence of a general character and printed or published at regular intervals. (ORD-24-0002 § 7, 2024; Ord. C-7600 §§ 1, 2, 1999; Ord. C-7423 § 25, 1996: Ord. C-6260 § 1 (part), 1986)

5.66.045—5.66.060 Reserved.

Editor's note—ORD-24-0002 § 7, adopted Jan. 23, 2024, deleted §§ 5.66.045—5.66.060, which pertained to Peddling—Special events, Permit required—Queen's Way area, and Downtown area vending permits and derived from: Ord. C-7934 § 10, 2004; Ord. C-7461 § 4, 1997; Ord. C-7423 § 25, 1996; Ord. C-6365 § 1, 1987; Ord. C-6317 § 2, 1986; and Ord. C-6260 § 1 (part), 1986.

5.66.070 Peddling within Tidelands jurisdiction.

Notwithstanding any other provisions of this Chapter, no peddling shall be allowed on or in any Tidelands area of the City unless a fully executed agreement exists between the vendor and the City permitting peddling activity in such area. (ORD-24-0002 § 7, 2024; Ord. C-7423 § 25, 1996: Ord. C-6260 § 1 (part), 1986)

CHAPTER 5.68 PEDICABS

5.68.010 Definitions.

Unless it appears from the context that a different meaning is intended, the following words, as used in this Chapter, shall have the following meaning:

A. "City Manager" means the City Manager of the City of Long Beach, or his designated representative.

B. "Driver" means and includes every person who drives, operates, controls or is in charge of any pedicab as defined by this Chapter.

C. "Pedicab" means a device upon which any person may ride, propelled by human power through a belt, chain or gears, having two (2) or more wheels, constructed in such a manner, and

authorized pursuant to this Chapter, to engage in the business of carrying passengers for hire along a fixed route of travel.

D. "Pedicab permit" or "permit" means the permit issued by the City Council authorizing operation of a pedicab pursuant to the provisions of this Chapter.

E. "Permittee" means any person to whom a pedicab permit is issued pursuant to the provisions of this Chapter.

F. "Person" means a natural person, his heirs, executors, administrators or assigns, and also includes a firm, partnership or corporation, its or their successors or assigns or the agent of any of the aforesaid. (Ord. C-6260 § 1 (part), 1986)

5.68.020 Permit—Required.

No person shall drive, operate or cause to be operated, nor shall any person employ, permit or allow another to drive, operate or cause to be operated by way of lease, contract, agreement, permit, license or understanding, a pedicab within the City without a permit first having been obtained as provided in this Chapter. (Ord. C-6260 § 1 (part), 1986)

5.68.030 Permit—Application.

A. Any person desiring a permit to operate a pedicab as provided by this Chapter shall file an application therefor with the City Council. Such application shall be verified by oath of the applicant, if a natural person; or by oath of an officer or partner of the applicant, if applicant is a corporation, partnership, association or unincorporated company, and which application shall set forth the name, age and address of the applicant, if a natural person; or if a corporation, its name, date and place of incorporation, address of its principal place of business and the names of all its officers together with their respective addresses; or if a partnership, association or unincorporated company, then the names of the partners comprising the partnership, association or company, together with their respective ages and addresses. The application shall also state the trade name or style, if any, under which the applicant proposes to operate, full information pertaining to operations and the manner in which such proposed operations are to be conducted, the type, model, capacity and condition of the pedicabs proposed to be operated, a full statement of the applicant's assets and liabilities, and such other or additional information as the City Council or the City Manager may require.

B. The City Council shall, upon receipt of the application, make full and complete inquiry into the facts set forth therein and shall either grant or deny a permit upon the proposed terms, or upon terms other than those proposed. The permit shall be for a specified number of vehicles which may be increased only by action of the City Council, which action may, at the discretion of the City Council, be taken without the necessity of an additional hearing. Such permit may, at the pleasure of the City Council, be for a prescribed period or for an indefinite period; provided that, in either event, the permit shall contain a clause authorizing its revocation or suspension in accordance with the ordinances of the City either in effect at the date of granting the permit or thereafter adopted. When issued, the permit shall constitute evidence of compliance with the terms of this Chapter and shall authorize the permittee to operate pedicabs under the conditions therein specified; subject, however, to the requirements, obligations and limitations imposed by other applicable laws, ordinances, and orders of the City Council, and shall become effective only upon payment of the fees required by the licensing provisions of this Code. (Ord. C-6260 § 1 (part), 1986)

5.68.040 Permit—Hearing and findings.

No permit shall be granted under this Chapter, except after a hearing thereon conducted under and in accordance with such rules and regulations as may from time to time be prescribed therefor by the City Council, nor until the City Council has determined that the public convenience and necessity require the operation proposed by the applicant for the permit. The City Council in determining whether or not such facts exist, shall take into consideration the public de-

mand for the service, the adequacy or inadequacy of service being rendered by other persons, the effect of the service upon traffic, the financial responsibility of the applicant, the character of equipment proposed to be furnished, and any and all other facts which the City Council may deem relevant. Before granting any such permit, the City Council shall require the City Manager or his designee to present, either orally or in writing, a report, together with his opinion, as to the existence of public convenience and necessity for the operation of the pedicabs. However, the burden of establishing the existence of public convenience and necessity shall always be borne by the applicant for a permit, and no such permit shall be issued unless there has been an affirmative showing of the existence of such public convenience and necessity by the applicant. (Ord. C-6260 § 1 (part), 1986)

5.68.050 Permit—Contents.

Each permit shall specify the route to be traveled and the hours between which pedicabs covered thereby are to be operated. No permittee under this Chapter shall operate or permit operation of any pedicab in violation of this Chapter or of the permit issued pursuant to this Chapter. The provisions of Section 10.48.070 of the Municipal Code relating to the prohibition of bicycles on certain sidewalks within the City notwithstanding, the City Council may authorize the route to include certain sidewalks and pedestrian routes within the downtown central business district and the Tidelands area. (Ord. C-6260 § 1 (part), 1986)

5.68.060 Application/permit fees.

A. A nonrefundable application fee, to defray the cost of processing the application for a permit under this Chapter, shall be required to be paid by every applicant seeking such a permit.

B. A permit fee shall be required to be paid by each applicant whose application for a permit has been granted pursuant to the provisions of this Chapter, to defray the cost of processing the permit.

C. The City Manager is authorized to establish the amount of the application and permit fees which amount shall not exceed the actual cost of processing the application and the permit. (Ord. C-6260 § 1 (part), 1986)

5.68.070 Nonemployee operation—Permitted.

Pedicabs may be operated by persons other than the permittee or his employees pursuant to a contract, agreement, permit, license or understanding between the operator and permittee by the terms of which an operator pays to the permittee a fixed or determinable sum for the use or operation of such pedicab. Such nonemployee operation is subject to all of the requirements of this Chapter, including, but not necessarily limited to, driver's permits, insurance and operating regulations. Permittee shall be responsible for the operations of said drivers, whether employees or not. Permittee's permit is subject to suspension or revocation for violations of this Chapter by permittee and said drivers, pursuant to Section 5.68.110. (Ord. C-6260 § 1 (part), 1986)

5.68.080 Business license required.

A business license shall be obtained and the fee therefor shall be paid as prescribed by the business license provisions of this Code in the following instances:

A. By every person to whom a pedicab permit has been granted pursuant to this Chapter;

B. By every person to whom a driver's permit has been issued, excepting those drivers who are employees of a person to whom a pedicab permit has been issued. (Ord. C-6260 § 1 (part), 1986)

5.68.090 License plate—Display.

Every pedicab operated pursuant to the provisions of this Chapter shall have displayed thereon either a distinctive license plate, a permit, or a facsimile thereof in the manner and form as may be prescribed by the City Manager. In addition, every permittee shall comply with the bicycle registration provisions of Chapter 10.50 of this Code. (Ord. C-6260 § 1 (part), 1986)

5.68.100 Rates—Establishment.

No rate or fare shall be placed in effect, charged, demanded or collected by any person for the transportation of passengers as covered by this Chapter until the City Council, after a hearing upon its own motion, or upon application, or upon complaint, has found and determined the rate to be just, reasonable and nondiscriminatory, nor in any wise in violation of any provision contained in this Chapter or any provision of law; nor until the rate or fare to be placed in effect, charged, demanded or collected has been established and authorized by the City Council. In establishing and authorizing such rates or fares the City Council shall take into account and give due and reasonable consideration to the cost of all comparable transportation services, including length of haul, any additional transportation service performed or to be performed, or of any accessorial service and the value of the facilities reasonably necessary to perform such transportation service.

Upon the granting of any permit as provided by Section 5.68.030, a copy of the permit defining the rates shall be transmitted by the City Council to the Chief of Police who shall, thereupon, be charged with the duty of enforcement of the rates and the applicable provisions of this Code. (Ord. C-6260 § 1 (part), 1986)

5.68.110 Permit—Suspension or revocation.

A. The City Council shall have the power to suspend or revoke any or all of the permits granted under the provisions of this Chapter when it has been determined that permittee or any of permittee's drivers, whether employees, contractors, lessees, permittees or licensees have violated any of the provisions of this Chapter, or have failed to comply with the terms of such permit or the rules and regulations of the City Council pertaining to the operation and to the extent, character and quality of the service. Before revocation of the permit, the holder thereof shall be entitled to a hearing thereon before the City Council and shall be notified thereof.

B. Notice of hearing on the suspension or revocation shall be in writing and shall be served at least ten (10) days prior to the date of the hearing thereon, such service to be upon the permittee, or its manager or agent, and which notice shall state the grounds of complaint against the permittee and shall also state the time when and the place where the hearing will be held. In the event the permittee cannot be found, or service of the notice cannot be made in the manner provided in this Section, then a copy of the notice shall be mailed, postage fully prepaid, addressed to the permittee at its last known address, at least ten (10) days prior to the date of the hearing. (Ord. C-6260 § 1 (part), 1986)

5.68.120 Authorized service only.

No person granted a permit under this Chapter shall conduct any operation or give any service other than the service authorized by the permit granted by the City Council in accordance with the provisions of this Chapter. (Ord. C-6260 § 1 (part), 1986)

5.68.130 Rates—Display.

Every pedicab used or operated under this Chapter shall, at all times, have displayed therein in a location or locations and in a manner which has been approved by the City Manager, the rates to be charged for the pedicab service, which rates shall always be visible to all passengers in the pedicab. (Ord. C-6260 § 1 (part), 1986)

5.68.140 Rates—Alteration.

The City Council shall have power, upon a hearing upon its own motion, or upon application, or upon complaint, to investigate a single rate or fare, or the entire schedule of fares in effect, charged, demanded or collected for the transportation of passengers covered by this Chapter and to establish a new rate, fare or schedule of fares in lieu thereof. Nothing contained in this Section shall be construed to empower the City Council to establish or authorize any rate or fare or any schedule of fares that will, by means of rebate, discount, allowance, premium or penalty, violate the rates or fares specified in the carrier's permit or the provisions contained in this Chapter or any applicable

provision of law. (Ord. C-6260 § 1 (part), 1986)

5.68.150 Rates—Discrimination prohibited.

No permittee, or any agent or employee thereof, or any driver or operator of any pedicab covered by this Chapter, shall charge, collect, demand, receive, arrange, solicit or bargain for any amount of compensation other than the rates or fares established and authorized by the City Council. (Ord. C-6260 § 1 (part), 1986)

5.68.160 Refusal to pay fare.

No person shall refuse to pay the authorized fare of any pedicab after having employed the same, and no person shall hire a pedicab with intent to defraud the person, from whom it is hired or engaged, of the value of such service. (Ord. C-6260 § 1 (part), 1986)

5.68.170 Driver permit—Required.

A. No person shall drive or operate a pedicab which is subject to this Chapter without having first obtained a driver's permit issued pursuant to the terms of this Chapter.

B. The applicant for such a permit shall:

1. Appear personally and file with the City Manager an application, in writing, upon a form to be furnished by the City Manager containing such information as said officer may require;

2. Deposit an application fee for said permit. The fee shall be established by the City Manager in an amount not to exceed the actual cost of processing the application. The fee shall not be refunded for any reason.

C. No driver's permit shall be issued to any person unless he has:

1. Shown a sufficient understanding of the traffic laws, ordinances, and rules and regulations of the State of California, the City of Long Beach and this Chapter;

2. Shown a sufficient understanding of the location of streets, roads and highways within the City of Long Beach, as may be applicable;

3. Obtained a business license and paid the tax therefor if required.

D. No driver's permit shall be issued to any of the following persons:

1. Any person under the age of eighteen (18) years;

2. Any person who has been convicted of a felony;

3. Any person who has been convicted of a crime involving moral turpitude, narcotics or dangerous drugs, unless a period of not less than five (5) years has elapsed since the date of conviction or the date of release from confinement for such offense, whichever is later;

4. Any person who has been convicted of reckless driving within two (2) years immediately preceding application for a permit;

5. Any person who has been convicted of driving a vehicle under the influence of intoxicating liquor or drugs within the five (5) years immediately preceding application for a permit;

6. Any person who is currently required to register pursuant to Section 290 of the California Penal Code;

7. Any person who, upon substantial evidence of facts of either physical or moral deficiencies, is found, in the sound discretion of the Chief of Police, not to be a competent person to drive or operate a pedicab pursuant to this Chapter.

E. The City Manager shall retain a copy of the driver's permit on file. The driver's permit shall constitute evidence of compliance with the terms of this Chapter, but shall be subject to all other applicable laws, ordinances and orders of the City Council and the rules and regulations and terms of the permit. The driver's permit shall be effective until the expiration date printed thereon or until suspended or revoked pursuant to this Chapter.

F. All permits issued as provided in this Section shall expire on December 31 next following the date of issuance unless previously suspended or revoked. All driver's permits, authorized to be issued under this Section, shall be effective only while the driver to whom the permit issued is operating a pedicab as an employee of or pursuant to an agreement, permit, license or other understanding with a person holding a valid pedicab permit issued pursuant to the provisions of this

Chapter. Upon the driver's terminating his employment or other relationship with a person holding a pedicab permit, his driver's permit shall be suspended and shall become effective again only when and if the driver reestablishes his employment or relationship as a driver with the pedicab permittee. The permittee shall notify the City Manager of the termination or reestablishment of such relationship between the permittee and driver.

G. A renewal permit shall be issued as provided in this Section to any driver who has paid the fee for such renewal and who had a valid driver's permit on December 30 of the last preceding year.

H. No permittee shall allow the operation of any pedicab by any person other than a holder of a driver's permit as required by this Chapter. (Ord. C-6260 § 1 (part), 1986)

5.68.180 Driver permit—Revocation.

A. The City Manager shall summarily revoke any driver's permit or temporary driver's permit issued under the provisions of this Chapter, when he has knowledge that the holder thereof has violated any provisions of this Chapter, or for any of the reasons set forth in Subsection 5.68.170.D of this Code. Notice of the suspension or revocation shall be given by the City Manager to the person involved.

B. Any driver who may be aggrieved by the action of the City Manager in suspending or revoking his driver's permit, or any applicant who may be aggrieved by the denial by the City Manager of his application, within ten (10) days from the giving of notice by the City Manager of such denial, suspension or revocation, may apply to the City Council for a hearing as to the matters in question, whereupon a time for the hearing shall be set, which shall be not later than thirty (30) days thereafter, at which time a full and complete hearing shall be held before the City Council. At the conclusion of the hearing the City Council may affirm, modify or overrule the action of the City Manager, in which latter event the driver's permit shall be granted or reinstated, as the case may be, and the decision of the City Council shall be final. Such hearing or application therefor shall not affect the order of suspension or revocation of the City Manager, unless and until acted upon and reversed or modified by the City Council.

C. The City Council shall suspend or revoke a driver's permit or temporary driver's permit either for any of the foregoing reasons or others from which the City Council shall conclude that a continuation of a driver's activities as such driver is, or may be, detrimental to the public health, peace, safety or welfare; provided, however, the City Council may take such action only after a hearing for such purpose, which shall be held after five (5) days' notice, and an opportunity to be heard, have been given to the driver.

D. Any driver whose driver's permit or temporary driver's permit is revoked pursuant to the provisions of this Chapter shall not be entitled to apply for reinstatement or a new permit before the expiration of one (1) year from the date of any such revocation. (Ord. C-6325 § 22, 1986: Ord. C-6260 § 1 (part), 1986)

5.68.190 Permit in vehicle.

Every driver shall have in his immediate possession the driver's permit required by this Chapter at all times while operating or in charge of a pedicab. No driver operating or in charge of any pedicab covered by this Chapter shall display or use a driver's permit issued to another for the purpose of operating such pedicab. (Ord. C-6260 § 1 (part), 1986)

5.68.200 Insurance.

At all times permittee shall defend, indemnify, and hold harmless the City, its officials, agents, and employees from and against any and all claims, demands, damage, causes of action, proceedings, loss, liability, costs and expenses (including reasonable attorney fees) of any kind (collectively in this Section, "claim") alleging injury to or death of persons or damage to property and that such injury, death or damage arises from or is attributable to or caused by the operations of permittee under this permit. Permittee shall notify the City of any claim within ten (10) days.

Every permittee shall, as a condition precedent to the operation of pedicabs pursuant to permit and to the issuance of a business license therefor, obtain insurance as prescribed in regulations issued by the City Manager pursuant to Section 2.84.040. (Ord. C-7934 § 11, 2004: Ord. C-6260 § 1 (part), 1986)

5.68.210 Inspection of pedicabs.

A. All pedicabs operated by any "person" as defined in this Chapter shall, before being placed in service, be approved by the City Manager. All such pedicabs shall be of a design and type of construction as shall comply with orders and regulations pertaining to such equipment adopted from time to time by the City Council. Such pedicabs shall at all times be kept in a clean and sanitary condition and in good state of repair and shall be subject to constant inspection by the City Council by and through the City Manager. Any pedicab which becomes unsafe or unserviceable, either from the standpoint of its state of repair or its condition of obsolescence, may be retired from service upon order of the City Council, and no pedicab which has been so retired shall be again operated in such service except with approval of the City Manager.

B. In the event the condition of any pedicab, in the opinion of the City Manager, is so unclean, unsightly or mechanically defective as to be undesirable for use by the public, the City Manager may require the pedicab to be immediately withdrawn from service and the vehicle shall not be again placed in service until approved by the City Manager. (Ord. C-6260 § 1 (part), 1986)

5.68.220 Penalty for violation.

Any person who violates any of the provisions of this Chapter, or of any permit issued by the City Council under this Chapter, shall be guilty of a misdemeanor. (Ord. C-6260 § 1 (part), 1986)

5.68.230 Operating regulations.

A. No person under the age of eighteen (18) years shall drive a pedicab.

B. No person shall operate a pedicab while under the influence of alcoholic beverages or drugs.

C. No person shall operate a pedicab in any manner which impedes or blocks the normal or reasonable movement of pedestrian or vehicular traffic unless such operation is necessary for safe operation or in compliance with law.

D. Every person operating a pedicab shall be subject to all applicable laws, rules and regulations of this Code and the Vehicle Code of the State of California covering the operation of bicycles upon streets and pedestrian or bicycle facilities.

E. No person shall operate a pedicab over any route not designated in the permit for the operation of such pedicab.

F. Whenever a pedicab is available for hire, said pedicab may be parked at any place designated by the City Manager as a pedicab stand or in any motor vehicle parking space, subject to the parking regulations as contained in this Code and the Vehicle Code of the State of California.

G. Whenever a pedicab is not available for hire, said pedicab shall be stored at a place and in a manner as approved by the City Manager. (Ord. C-6260 § 1 (part), 1986)

CHAPTER 5.69 AMUSEMENTS

5.69.010 Definitions.

As used in this Chapter, the following definitions shall apply:

A. "Bowling alley" means a structure in which the game of bowling is played by the public. The game uses a heavy ball which is bowled along a wooden lane or bowling alley. The object is to knock down ten (10) wooden pins set up in an upright position at the far end of the lane.

B. "Pool hall" or "billiard hall" means a hall or structure wherein the games of pool or billiards are played by the public. These games are played with cue sticks on rectangular tables with or without pockets, using one (1) to fifteen (15) balls. One (1) or more pool or billiard tables shall constitute a pool hall or billiard hall which shall require a pool hall or billiard hall license.

C. "Family billiard room" means any billiard room wherein minors are permitted to play billiards under the provisions of this Code.

D. "Public cardroom" or "public card table" means any place wherein the public assembles to play card games of skill or chance for enjoyment or amusement purposes only. Wagering or the exchange of money or anything of value is strictly prohibited.

E. "Amusement machine" means an apparatus operated by or for a patron or patrons for amusement, diversion or sport in exchange for financial or other valuable consideration. "Amusement machine" shall include, but not be limited to: jukeboxes and musical apparatus excluding karaoke; batting cages; pinball machines; amusement rides; automated pin setting machines, ping pong tables and dart games; electronic or video games; shuffleboard games; mini-motion pictures and public video projectors, screens, stalls and structures, and the like.

F. "Arcade" means a commercial entertainment land use consisting of five (5) or more amusement machines located within one (1) building or structure as more fully defined in Section 21.15.220 of this Code.

G. "Mini-motion picture projector, screen, stall or structure or public video projector, screen, stall or structure" means an amusement machine consisting of any place to which the public is admitted wherein, in exchange for financial or other valuable consideration, electronically or mechanically controlled still, motion picture or video machines or projectors are maintained to project, display or show pictures, movies, slides, films, discs or tapes to five (5) or fewer persons per machine at any one (1) time. Each machine projecting or displaying such pictures, movies, slides, films, discs or tapes, shall be considered one (1) amusement machine in determining if a business is an arcade within the meaning of this Chapter. (Ord. C-7423 § 33, 1996)

5.69.020 Amusement machines/Zoning regulations.

A. No person shall operate four (4) or less amusement machines at any one (1) location within the City as a primary business. Such machines shall be limited to accessory use. For purposes of this Chapter, accessory use is defined in Long Beach Municipal Code Section 21.15.060. (Ord. C-7423 § 33, 1996)

5.69.030 Arcades/Zoning regulations.

A. No person shall operate five (5) or more amusement machines at any one (1) location within the City, whether a primary business or an accessory business activity, without obtaining a business license as an arcade and a conditional use permit (if applicable) as required by the City Zoning Ordinance. Notwithstanding this Section or any other provision of law, a business protected by the First Amendment to the United States Constitution is not required to obtain a conditional use permit before obtaining a license as an arcade. (Ord. C-7423 § 33, 1996)

5.69.040 Inspections and miscellaneous regulations.

A. Inspections. All premises subject to regulation pursuant to the provisions of this Chapter, whether public or private, shall, at all times when open to its membership or to the public, be subject to inspection by the Director of Financial Management or his/her designee, all health, planning and building, fire and business licensing inspectors and by police personnel in pursuit of their official duties, and no person shall hinder or obstruct such inspection. The purpose of the inspection is to determine whether the permitted premises is being operated in compliance with all requirements of applicable law. Delay or obstruction of such inspection may be grounds for suspension or revocation of any license or permit issued by the City.

B. Warning Devices. The owner, operator, manager, person in charge, or any other person shall not signal nor maintain nor utilize any device designed to signal, alert or otherwise warn any person on the premises as to the presence of police or any authorized inspector.

C. Visibility of Interior. The permittee shall not maintain any mini-motion picture stall or struc-

ture or public video stall or structure unless the entire interior of such stall or structure, and the premises in which it is located, wherein the pictures, movies, films, discs or tapes are viewed, is visible upon entrance to such premises. No partially or fully enclosed or concealed booths shall be maintained.

D. Dispensing of Towels. The permittee of any mini-motion picture or public video structure shall not maintain dispensers of towels or towelettes for use by patrons upon the premises except where located in a bona fide restroom.

E. Severability. If any portion of this Section shall become unconstitutional or legally defective for any reason, that shall not affect or prevent enforcement of the remaining portions or subsections. (Ord. C-7423 § 33, 1996)

5.69.050 Permit required.

A. Permit Required. No person shall carry on, maintain or conduct any arcade, public card room or public card table, bowling alley, billiard hall, pool hall or family billiard hall structure in the City without first obtaining either a permit from the City Council or a Conditional Use Permit issued by the Planning Commission or the City Council on appeal.

B. Notwithstanding the provisions of Subsection 5.69.050.A, if a permit application for a pool hall involves two or less pool tables, the Director of Financial Management may issue such permit without a hearing by the City Council if the concerned City departments do not object to such issuance. If a City department recommends denial of the permit, the provision of Subsection 5.69.060.D shall apply. (ORD-19-0034 § 1, 2019; Ord. C-7423 § 33, 1996)

5.69.060 Permit application process.

A. Filing. Any person desiring a permit required by this Chapter, shall make application on forms to be provided by the Director of Financial Management. Such application shall include the name and address of the applicant, the proposed location, and such other information deemed pertinent by the Director of Financial Management.

1. The person whose signature appears on the application shall attest that they are a duly authorized representative of the applicant and that the information contained in the application is true and correct.

2. The application shall be filed under penalty of perjury. False statements therein will constitute grounds for denial or revocation as applicable.

3. An incomplete application shall not be accepted for processing.

4. A nonrefundable investigation fee, as set by a City Council resolution, shall be paid to the City at the time the application is filed.

B. Change in Contents. Any change in any information in the application, which occurs after the application has been filed and prior to City Council approval, must be submitted in writing to the Director of Financial Management within ten calendar days after the change has occurred.

C. Investigation. On receipt of the application, the Director of Financial Management shall refer it to all concerned City departments for investigation. Such departments shall file their reports and recommendations regarding the approval or denial of the permit with the Director of Financial Management within sixty days after the application is filed, except where circumstances beyond the control of the City justifiably delay such response.

D. Hearing.

1. The Director of Financial Management shall transmit the application, together with the reports and recommendations of the City departments, to the City Council for hearing and shall notify the applicant of the time and place of the hearing which shall be held before the City Council on the first available hearing date.

2. Prior to the hearing, the Director of Financial Management shall give the applicant notice of the recommendations of the City departments.

3. At the hearing, if the City Council determines that the application is complete and truthful; that where the applicant is an entity, it is a bona fide entity, organized and conducted for a lawful purpose; that the applicant, the persons

interested in the ownership and the operation of the entity and the officers and trustees of the entity are law abiding persons and persons who will operate and conduct the business or activity in a lawful manner; and that the public peace, welfare and safety will not be impaired, then the application shall be approved. Otherwise, it shall be denied. However, despite City Council approval of the application for the permit, the applicant shall not operate his/her business (or activity) until a permit is actually issued by the Director of Financial Management. Upon approval of the application, the Director of Financial Management shall issue the permit provided that the applicant has met all conditions imposed by any City department, has complied with all applicable laws, and has paid the applicable license tax and permit fees. The applicant shall have a maximum one hundred eighty (180) days after City Council approval to obtain the permit. Failure to do so within that period shall render the City Council approval void, unless an extension of the compliance period is granted by the City Council before the compliance period has expired. (Ord. C-7423 § 33, 1996)

5.69.070 Temporary permit.

A. Whenever there is a change of ownership where the previous owner had a valid permit, or where a new permit, not involving adult entertainment as defined in Title 21 hereof, is applied for, the Business License Section may issue a temporary amusement permit to the new owner, subject to the following conditions:

1. The new owner must apply for a temporary permit on forms provided by the City. The application may be approved if it is verified that the records of the Police, Fire and Health Departments indicate no public nuisance has been maintained at the location during the past twelve (12) months before the application date.

2. No temporary permit shall be issued unless the applicant has also applied for a regular permit for the same location.

3. A temporary permit shall automatically expire one hundred twenty (120) days from date of issuance or when an application for a regular permit is approved or denied by the City Council; whichever occurs first. A temporary permit may be revoked pursuant to Chapter 5.06 of this Title 5;

4. The applicant shall at all times during operation under the temporary permit comply with any conditions imposed by the Chief of Police or other City departments. At the time a temporary permit is issued, the applicant shall agree to comply with all temporary operating conditions assigned. The applicant shall also agree to hold the City harmless for liability/damages arising from any contractual agreements or investments made which assume the eventual issuance of an unrestricted permit; and

5. A nonrefundable fee, as set by City Council resolution, shall be paid to the City when the application for a temporary permit is filed. (Ord. C-7423 § 33, 1996)

5.69.080 Permit nontransferable.

A. Any permit issued pursuant to this Chapter shall not be transferred or assigned to another person for any purpose. Any change in ownership shall require a new permit. Regardless of any change in ownership, the permittee shall be required to notify the Director of Financial Management of any change in the business name. The following shall be deemed a change of ownership:

1. For general partnership personnel, the addition or substitution of a new partner;

2. For a limited partnership, the addition or substitution of a new partner or the addition or substitution of a general partner not listed as a partner in the application for the permit previously approved;

3. For a corporation, more than fifty percent (50%) of the shares of stock is transferred to or acquired by persons other than those designated in the application for the permit previously approved.

B. Any permit issued pursuant to this Chapter shall not be transferred to any other location for any purpose. Any change in location shall require a new permit. The following shall be deemed a change in location:

1. Any relocation or expansion that includes a separate piece of property or parcel of land.

2. Any expansion of the initially permitted premise which represents a greater than fifty percent (50%) increase in the square footage of space devoted to public access or occupancy.

C. The lawful conduct of activity regulated by this Chapter by a permittee shall be limited to those activities expressly indicated on the permit application and approved by the City Council. Any change in activity which exceeds the parameters of the approved permit will require the approval of the City Council. (Ord. C-7423 § 33, 1996)

5.69.090 Billiard/Pool hall operating regulations.

A. Where admission of persons under the age of eighteen (18) years is permitted as a condition of a license approved by the Alcoholic Beverage Control Board, no person owning, controlling, managing, or having charge of any public pool hall, public billiard hall, public cardroom or public card table, or any other table kept or used for gaming shall allow any person under the age of eighteen (18) years to engage in, play or loiter near any game of pool, billiards, cards, amusement machine or any other game or device unless accompanied by such person's parent, legal guardian, or an adult at least twenty-five (25) years of age. The legal parent, legal guardian or adult at least twenty-five (25) years of age shall be within the premises at all times but need not be by the side of the person under the age of eighteen (18) years.

B. Where admission of persons under the age of eighteen (18) years is permitted as a condition of a license issued by the Alcoholic Beverage Control Board, no person under the age of eighteen (18) years shall engage in, play or loiter near any game of pool, billiards, cards, amusement machine or any other game or device unless accompanied by such person's parent, legal guardian, or an adult at least twenty-five (25) years of age. The legal parent, legal guardian or adult at least twenty-five (25) years of age shall be within the premises at all times but need not be by the side of the person under the age of eighteen (18) years.

C. No person having charge or control of any pool or billiard hall shall allow a person under the age of eighteen (18) years to enter and remain therein after the receipt of a notice signed by the parent or guardian of such minor or person in which the parent or guardian has requested that the minor be prevented from entering or remaining in any such premises.

D. No person less than eighteen (18) years of age shall enter or remain in a pool or billiard hall between the hours of one (1) minute after twelve a.m. and three-thirty p.m. on any day that schools are in session during the school year. On days during the school year where there are no school sessions, then no person less than eighteen (18) years of age shall enter or remain in a pool or billiard hall between the hours of one (1) minute after twelve a.m. and nine a.m. (ORD-19-0034 §§ 2, 3, 2019; Ord. C-7423 § 33, 1996)

5.69.100 Suspension/Denial/Revocation.

A. Noncompliance. Failure to comply with any of the provisions of this Chapter, including any conditions attached to the permit at the time of approval, will constitute grounds for suspension, denial or revocation of the permit. The suspension or revocation of a permit shall be governed by the provisions of Chapter 5.06 of this Title 5.

B. Cease Activity. No person shall conduct any business or activity regulated by this Chapter during the pendency of a permit application except as permitted by Section 5.69.070, or at any time after permit denial or revocation or during the time a permit therefor has been suspended. (Ord. C-7423 § 33, 1996)

5.69.110 Permit reapplication.

Whenever a permit has been revoked or an application for a permit has been denied, no other similar application shall be considered for a period of one (1) year from the date of such revocation or denial. This applies to any person whose permit was revoked or whose application was denied who later becomes a director or officer of a corporation, profit or nonprofit, or a member of a partnership or a person owning or possessing fifty percent (50%) or more of the shares of a corpora-

tion which seeks to obtain a new permit. This shall also apply to a corporation, profit or nonprofit, whose permit was revoked or application denied, to any of its directors or officers or to any person who owned fifty percent (50%) or more of its shares, who attempts by way of a new corporation or by the use of their individual names or becoming a member of a partnership or a director or

officer or a person owning or possessing fifty percent (50%) or more of the shares in another corporation to obtain a new permit. Whenever any permit is suspended, the provisions of this Section shall apply to the permittee during the period of suspension. (Ord. C-7423 § 33, 1996)

CHAPTER 5.70 PUBLIC BATHHOUSES, HEALTH PARLORS AND SPAS

5.70.010 Definitions.

A. "Bathhouse" as used in this Chapter means and includes any establishment that contains any artificial pool, pond, or body of water, the primary use or intended use of which is for swimming or bathing.

B. "Health parlor" or "spa" as used in this Chapter means and includes any premises, structure or portion thereof used or intended to be used for exercising, bodybuilding, body tanning, or any other similar activity associated with physical fitness or well being or attractive appearance, with or without the use of equipment. (Ord. C-6260 § 1 (part), 1986)

5.70.015 Permit—Required.

No person shall conduct the business of a bathhouse, health parlor or spa without first obtaining a permit therefor from the Health Department. (Ord. C-6260 § 1 (part), 1986)

5.70.020 Permit—Issuance.

Permits to conduct any business subject to permit under Section 5.70.015 shall be issued by the Health Department upon written application therefor. Such permit shall authorize the applicant to conduct such business on an annual basis or until the permit therefor is suspended or revoked. (Ord. C-6260 § 1 (part), 1986)

5.70.025 Permit fee.

Every person applying for a permit under this Chapter 5.70 shall pay a fee in the amount established by resolution of the City Council adopted pursuant to Section 5.04.040. (Ord. C-6260 § 1 (part), 1986)

5.70.030 Permit—Premises inspection.

Before granting any permit provided for in Section 5.70.015, the Health Department shall examine the premises wherein it is proposed to conduct such business. It shall ascertain that the following conditions prevail:

A. That the buildings proposed to be used are constructed in such a manner that the rooms may be thoroughly sterilized with soap and water or with a solution of some suitable antiseptic approved by the Health Department;

B. That no rooms are provided as sleeping rooms or no rooms are provided for sexual activities;

C. That the floors are constructed of some impenetrable material, preferably concrete, and that the same are thoroughly scrubbed daily;

D. That separate changing rooms have been provided for males and females, and that no connection exists between the changing rooms;

E. That separate shower baths and separate toilets have been provided for male and female;

F. That all bathing suits, if supplied, are thoroughly washed and disinfected after each use. (Ord. C-6260 § 1 (part), 1986)

5.70.040 Permit—Suspension.

Whenever it appears to the Health Department that the provisions of this Chapter with reference to any business for which a permit is required under Section 5.70.015 are not being complied with, or that any said business is being conducted in such a manner as to endanger the public health, safety or morals, any permit issued under this Chapter may be suspended by the Health Department pursuant to the provision of Chapter 5.06 of this Title 5. (Ord. C-6260 § 1 (part), 1986)

CHAPTER 5.71 PUBLICLY ACCESSIBLE EXTERIOR PAY TELEPHONES*

5.71.010 Definitions.

A. "City Manager" shall mean the City Manager of the City of Long Beach or his or her designee.

B. "Publicly Accessible Exterior Pay Telephones" ("PAT") shall mean an exterior pay telephone including any pay telephone enclosure or other structure surrounding the "PAT" located on public property or on private property if the private property is open or accessible to the public, into which money may be deposited, or through which a credit card or telephone credit card number may be entered, for purposes of obtaining a telecommunications link to communicate with another who receives the communication by telephone or pager.

C. The "PAT Operator" shall mean any person[s] or entity authorized to sell, lease, install or otherwise contract for the sale, use, maintenance or installation of a PAT.

D. "Unimproved Property" shall mean any vacant lot, land, parcel, or other real property that lacks any building or structure.

E. "Vacant Building", for the purpose of this Chapter, shall mean any roofed structure built for the support, shelter or enclosure of persons, animals, chattel or property of any kind which has not been used for a period of three (3) or more months.

F. "Property Owner", for the purpose of this Chapter, shall mean the owner of record on any such parcel of real property as designated on the County Assessor's tax roll, or a holder of a subsequently recorded deed to the property. (ORD-12-0010, § 1, 2012)

5.71.020 Publicly Accessible Exterior Pay Telephones; exterior pay telephone permit required.

No PAT shall be permitted in the City unless located completely within an enclosed building space unless a valid exterior pay telephone permit is first obtained for each PAT by the PAT Operator with the written consent of the Property Owner and according to the provisions of this Chapter. A new exterior pay telephone permit shall be required for any change or transfer of ownership of the PAT, or relocation of the PAT. The permit may be issued by the City Manager only after payment of fee(s) established by resolution of the City Council adopted pursuant to Section 5.04.040. All PAT's shall be removed within fifteen (15) days of expiration or revocation of the business license, or revocation of the exterior pay telephone permit of the PAT Operator. (ORD-12-0010, § 1, 2012)

5.71.030 Permit required for existing Publicly Accessible Exterior Pay Telephones.

A permit shall be required for any PAT installed on any improved property outside of a building as of the effective date of this Section. Any PAT which was lawfully installed on any improved property outside of a building as of the effective date of this Section which does not comply in whole or in part with the requirements of this Chapter shall be removed or otherwise brought into full compliance within one (1) year of the effective date of this Section. For those PAT's lawfully installed on any improved property outside of a building which cannot be brought into compliance because they do not meet the requirements of this Chapter, the use may be extended for only one (1) additional one (1) year period of time (not to exceed two (2) years), to be determined by the City Manager upon a showing by the PAT Operator that such extension is reasonably necessary to permit the PAT Operator adequate time to amortize or otherwise recover any long term investment in the PAT operation.

Any request for an extension of the amortization period must be made in writing by the owner of the PAT to the City Manager by filing a request in writing with the Commercial Services Bureau of the Department of Financial Management no later than ninety (90) days prior to the end of the initial one (1) year period provided for in this Section.

*__Editor's note__—ORD-12-0010, § 1, adopted May 15, 2012, amended Ch. 5.71 in its entirety to read as herein set out. Former Ch. 5.71, §§ 5.71.010—5.71.160, pertained to similar subject matter and derived from: Ord. C-7778 § 1, 2001.

If no permit is obtained as required by this Section, the City may remove or cause to be removed such PAT, and the City's reasonable costs of removal shall be a personal obligation of the owner of such PAT, payable to the City on demand. (ORD-12-0010, § 1, 2012)

5.71.040 Permit application.

An application for an exterior pay telephone permit shall be filed in compliance with Chapter 5.04 and shall at a minimum contain the following information:

A. A site plan showing the location of the proposed PATs;

B. An elevation of the proposed PAT design, including lighting, colors, design, and enclosure configuration;

C. The name, address, and telephone numbers of the PAT operator, of the property owner where the PAT will be located, the business owners, if applicable, and the name, address, and telephone number of the proposed vending company responsible for installation, maintenance, and billing of the proposed PAT;

D. Such other information as required by the City Manager. (ORD-12-0010, § 1, 2012)

5.71.050 Prohibited locations.

A. No PAT shall be installed, located or maintained on a Vacant Building, Unimproved Property, or property upon which exists a Vacant Building;

B. No PAT shall be installed, located or maintained on any private property or any public right-of-way adjacent thereto, that has a premises licensed for the sale of alcoholic beverages (other than beer or wine);

C. No PAT shall be installed, located or maintained at a location where use from a vehicle is possible which would cause the vehicle to stand in a driveway or aisle in a parking lot or in the right-of-way;

D. No PAT shall be installed, located or maintained within five feet (5') of any area used for vehicular ingress or egress or an aisle way or parking area for vehicular travel;

E. No PAT shall be installed, located or maintained within five feet (5') of the entrance or exit to any structure, a crosswalk, a bus shelter, a fire exit or escape, a mail box, parking meter, traffic control box, fire hydrant or that otherwise blocks or restricts free passage of pedestrians or vehicles;

F. No PAT shall be installed, located or maintained on any property or at any location that has been determined by the City Manager to create a nuisance based upon prior actual use;

G. A PAT shall not be located within a required landscape area and access to the PAT shall not require walking in or standing on any required landscaped area;

H. A PAT shall not be located on or encroach over any public property or right-of-way unless an occupancy permit is first obtained as required by Title 14 of this Code;

I. No PAT shall be installed which utilizes an electrical supply unless an electrical permit is first obtained as required by Title 18 of this Code;

J. No PAT shall be located such that its installation or use interferes with any operation of the legally established use of the property or other land use requirements such as emergency fire exits or parking;

K. No PAT shall be installed in such a manner that would require or allow the user of the PAT to stand or otherwise be located in the public right-of-way. Any existing PAT which is located or maintained in violation of Subsection A shall be removed within thirty (30) days after the effective date of this ordinance.

L. No PAT shall be installed within five feet (5') of any premises property line. (ORD-12-0010, § 1, 2012)

5.71.060 Minimum standards for a publicly accessible exterior pay telephone permit.

Installation, operation, and maintenance of PAT's shall be in accordance with all applicable codes, laws, rules, regulations, and statutes including the City's General Plan, any applicable specific

plans, the local coastal program, and all zoning regulations of the applicable district and the following minimum standards:

A. The PAT Operator shall have a valid City business license;

B. The PAT Operator shall have written consent of the current Property Owner for the placement of the PAT. Said written consent shall be provided to the City at the time the application for a permit is filed;

C. No PAT shall be installed in violation of the provisions of the Americans with Disabilities Act or equivalent California disability access regulations;

D. All PAT's shall have the following operating features at all times:

1. Display of a valid City permit identification number;

2. Display of PAT Operator identification;

E. All PAT's shall be maintained in a clean, neat, damage-free, and unless otherwise required, operable manner at all times;

F. Installation and operation of PAT's shall at all times be maintained in accordance with all applicable requirements of the California Public Utilities Commission and the Federal Communications Commission;

G. Lighting shall be provided and permanently maintained for all PAT's to ensure that any user of the PAT can be clearly visible to nearby traffic, pedestrians, or public areas and that the level of light will be a minimum of one (1) foot candle measured not less than two feet (2') from the base of the instrument. Such lighting shall be directed away or screened from any adjacent residential uses;

H. PAT's shall, at all times, have posted on the pay phone a clearly visible number to call for consumer rights information, complaints and other information related to consumer protection, or as otherwise required by law or other regulatory agencies, or as required by the City Manager;

I. Any other feature, signage, or information as required by the City Manager. (ORD-12-0010, § 1, 2012)

5.71.070 Operating conditions.

The City Manager may impose any and all additional conditions as may be reasonably required to maintain the public health, safety and welfare of the community, including, but not limited to the following:

A. A requirement that the PAT be located in close proximity to the place of business so that the PAT is clearly visible to the interior of the adjacent business or businesses;

B. Restrictions relating to the telephone style/mounting or mounting configuration;

C. Restrictions to prevent the use of pagers or beepers or the use of electronic wiring, not telephone wire, for electronic connections;

D. A restriction rendering the PAT incapable of receiving incoming calls;

E. A requirement that PATs shall be either a so-called "smart phone" equipped with a built in computer or a "smart line" phone having the capability of making the telephone inoperative for designated periods of time;

F. A requirement to provide lists to the City upon request of each outgoing call as to the number called, its duration, and the date and time of the call;

G. A requirement that each PAT be equipped with a built-in volume control and a key pad that prevents the use of pagers or beepers;

H. Requirements limiting the hours of PAT operation together with appropriate signage related to said hours of operation;

I. A requirement to install a timer or manual switch that would allow the property owner or operator of the location of the PAT to control the functionality of the PAT remotely;

J. A requirement to provide suitable trash receptacles adjacent to the PAT;

K. A requirement to program the PAT so that said PAT may not be used or operated other than during the hours of operation specifically permitted;

L. Limiting the hours of operation of the PAT, except that 911 service shall be operable at all times;

M. Relocating the PAT to a different location on the property as approved by the City Manager;

N. Rendering of the PAT inoperable for a period to be determined by the City Manager;

O. Relocating the PAT inside the business;

P. Blocking of all incoming calls. (ORD-12-0010, § 1, 2012)

5.71.080 Public nuisance.

Any PAT which is used as an instrumentality for or contributes substantially by its presences to any of the following conditions is hereby declared to be a public nuisance:

A. Selling or giving away controlled substances (as defined in Division 10 of the California Health and Safety Code);

B. Soliciting, agreeing to engage in, or engaging in an act of prostitution; or other criminal activity;

C. Consumption of alcoholic beverages on nearby outdoor public or private property except where outdoor consumption of alcoholic beverages is specifically authorized pursuant to a license issued by the Department of Alcoholic Beverage Control;

D. Loitering on nearby public or private property;

E. Excessive noise;

F. Disturbance of the peace, public drunkenness, harassment of passerby, gambling, public urination or lewd conduct.

As used in this Section, "loitering" shall mean standing, sitting, lying or remaining on any property under such circumstances that a reasonable person would conclude that the person who remains on the property does not have a purpose connected with the usual and ordinary use to which such property is put, does not have a bona fide intent to exercise a constitutional right, and is causing public inconvenience or annoyance. (ORD-12-0010, § 1, 2012)

5.71.090 Abatement generally.

Whenever the City Manager or designee determines that any PAT constitutes a public nuisance, the City Manager may commence proceedings to either suspend or revoke the permit or impose one (1) or more of the operating conditions set forth in Section 5.71.070, as appropriate. (ORD-12-0010, § 1, 2012)

5.71.100 PAT permit—Suspension or revocation—Hearing.

A. No permit issued pursuant to the provisions of this Chapter shall be suspended or revoked until after a hearing is held by the City Manager, relating to such suspension or revocation, notice of which hearing shall be given in writing to the permittee and served at least ten (10) days prior to the date of the hearing thereon. Such service shall be upon the holder of such permit or his/her manager or agent, which notice shall state the ground of suspension or revocation and shall also state the time when, and the place where, such hearing will be held. The notice shall be served upon the holder of the permit by mailing a copy of the notice, postage fully prepaid, addressed to the permittee at the address set forth in the permit application at least ten (10) days prior to the date of the hearing.

B. Any permit revoked pursuant to the provisions of this Chapter shall be surrendered by the permittee to the City Manager who shall transmit it to the business license section of the Department of Financial Management. The PAT shall be surrendered within ten (10) days or other time frame as may be designated by the City Manager or the City Council. (ORD-12-0010, § 1, 2012)

5.71.110 PAT permit—Suspension or revocation—Appeal.

A. Any applicant for a permit, pursuant to this Chapter, whose application for such permit has been denied by the City Manager, or any permittee whose permit has been suspended or revoked by the City Manager, may, within ten (10) days after such denial, suspension or revocation, appeal to the City Council pursuant to the provisions of Section 5.06.030. The disposition of the appeal by the City Council shall be final;

B. When an appeal is filed, the order of suspension or revocation shall be stayed pending the

determination of the appeal by the City Council. The suspension or revocation shall be dissolved immediately if the decision of the City Council reverses the decision made by the City Manager. (ORD-12-0010, § 1, 2012)

5.71.120 Removal of publicly accessible exterior pay telephones.

If any PAT permit is cancelled, suspended, or revoked, and the PAT is not removed by the Property Owner or PAT Operator within the time period designated by the City Manager, the PAT shall be deemed a public nuisance and the abatement of said nuisance will be accomplished by either City forces or private contractor, and the City Manager is expressly authorized to enter the premises for such purpose. Upon failure to claim the PAT and pay the expenses of removal and storage within thirty (30) days after removal, the PAT will be discarded or will be sold if determined to have value. The Property Owner or PAT Operator, as appropriate, shall be liable for the City's costs incurred in the removal and storage of such PAT, and said costs may constitute a lien upon said property until paid. (ORD-12-0010, § 1, 2012)

5.71.130 Additional remedies.

In addition to any other remedy set forth in this Chapter, the City Manager or designee may cause the issuance of an administrative citation for any violation of this Chapter in accordance with Chapter 9.65 of this Code. (ORD-12-0010, § 1, 2012)

CHAPTER 5.72 ENTERTAINMENT AND SIMILAR ACTIVITIES

5.72.110 Permit required and prohibited uses.

A. No person shall carry on, maintain or conduct any entertainment activity in the City without first obtaining a permit therefor from the City.

B. Entertainment provided at a private residence for the monetary gain of any person is prohibited. However, this prohibition is in no way intended to infringe on the rights of private persons to engage in the activities regulated by this Chapter at their residence for private, as opposed to commercial, purposes. (Ord. C-7423 § 26, 1996)

5.72.115 Definitions.

A. "Entertainment activity" means any activity conducted for the primary purpose of diverting or entertaining a clientele in a premises open to the general public. Such activity shall include, but shall not be limited to, dancing, whether by performers or patrons of the establishment, live musical performances, instrumental or vocal, when carried on by more than two (2) persons or whenever amplified; musical entertainment provided by a disc jockey or karaoke, or any similar entertainment activity involving amplified, reproduced music.

B. "Adult entertainment activity" means the presence of any performer, dancer, employee, agent, model or other person in any place of entertainment who engages in any specified sexual activity (as that term is defined in Section 21.15.110 of this Code), who exposes any specified anatomical part (as that term is defined in Section 21.15.110 of this Code), or who performs in attire commonly referred to as pasties or a g-string, or any other opaque covering which does not expose the areola or nipples of the female breast, and/or covering the natal cleft and covers one inch (1") or less on either side of the entire length of the natal cleft and two inches (2") or less across the pubis from the end of the natal cleft to the top of the pubic bone. (Ord. C-7713 § 1, 2000: Ord. C-7423 § 26, 1996)

5.72.120 Permit application filing and process.

A. All applications for entertainment permits, other than adult entertainment activity as that term is defined in Subsection 5.72.115.B shall be filed with the Director of Financial Management on such forms as he or she may prescribe, and shall contain the following:

1. The name and permanent address of the applicant and all other persons having a financial

interest in the operation of the entertainment, business or premises where the entertainment is to be located;

2. A description of the proposed entertainment, including the maximum number of persons who are expected to be present within the entertainment establishment at any one time;

3. The proposed opening date and hours of operation of the entertainment establishment;

4. For special or limited duration events, the date or dates, hours and location of the proposed entertainment;

5. The proposed security arrangements for the control of patrons;

6. The name or names of the person or persons having management or supervision authority over the proposed entertainment, or any business or premises wherein the entertainment is proposed to be located;

7. Whether or not the applicant or any other responsible person(s) have been convicted of a misdemeanor involving moral turpitude or a felony offense within the past five (5) years, the nature of such offense(s), and the sentence(s) received therefor;

8. Written consent for the proposed entertainment on the premises from the owner of the property on which the entertainment is to be conducted;

9. Such other information as the Director of Financial Management shall deem necessary for the proper processing and review of the application.

B. The person whose signature appears on the application shall attest that he or she are a duly authorized representative of the applicant and that the information contained in the application is true and correct.

C. The application shall be filed under penalty of perjury. False statements therein will constitute grounds for denial, suspension or revocation as applicable.

D. An incomplete application shall not be accepted for processing.

E. A nonrefundable investigation and notification fee, as set by City Council resolution, shall be paid to the City at the time the application is filed.

F. Change in contents. Any change in any information in the application which occurs after the application has been filed, and prior to City Council approval, must be submitted in writing to the Director of Financial Management within ten (10) calendar days after the change has occurred.

G. Investigation. On receipt of a complete application, the Director of Financial Management shall refer it to all concerned City departments for investigation. Such departments shall file their reports and recommendations regarding the approval or denial of the permit with the Director of Financial Management within sixty (60) days after the application is filed, except where circumstances beyond the control of the City justifiably delay such response.

H. Hearing notices.

1. The Director of Financial Management shall transmit the application, together with the reports and recommendations of the City departments, to the City Council for hearing and shall notify the applicant of the date, time and place of the hearing which shall be held before the City Council on the first available hearing date.

2. Prior to scheduling the hearing, the Director of Financial Management shall give the applicant notice of the recommendations of the City departments.

3. Notice of the time and place of the hearing shall also be given:

a. By mail to each owner of property within three hundred feet (300') of the site of the proposed activity;

b. By mail to occupants of property within three hundred feet (300') of the site of the proposed activity;

c. By posting the property in a conspicuous location at the site of the proposed activity.

The applicant shall pay all costs of such notice in the manner prescribed by the City's Director of Financial Management.

4. At the hearing, the City Council shall approve the issuance of the entertainment permit if they find:

a. That issuance of the permit and conduct of the entertainment at the proposed location, as conditioned, is consistent with federal, state and local laws, rules, regulations and any existing special permit(s);

b. That issuance of the permit at the proposed location, as conditioned, will not constitute an undue burden on the neighborhood because of its proximity to residences, inadequate parking or other neighborhood circumstances and will not interfere with the reasonable use and enjoyment of the neighborhood by its residents;

c. Whether or not the applicant or any other responsible person(s) have been convicted of a misdemeanor involving moral turpitude or a felony offense within the past five (5) years, the nature of such offense(s), and the sentence(s) received therefor;

d. Neither the applicant or any responsible person or principal of the applicant has a history of committing, permitting or failing to prevent significant violations of the City code, or any license or permit, in connection with an entertainment establishment for which he or she is or was a responsible person;

e. It does not appear, based upon the information before the City Council, that the applicant has provided false or misleading material information in the application.

I. Where the Director of Financial Management does not recommend approval of a permit, the Director of Financial Management shall inform the applicant of the reason(s) for the denial in writing prior to the date the permit is scheduled for City Council consideration.

J. In issuing the permit, the City Council may impose conditions relating to the operation of the entertainment establishment. Conditions may relate to:

1. The days, hours and location of operation;

2. Restrictions designed to prevent minors from obtaining alcohol, such as separate entrances, exits, and restroom facilities on the premises;

3. The number and age of persons allowed on premises;

4. Whether licensed security guards are required, and if so, how many;

5. Specific measures the permittee must undertake to control the conduct of patrons so as to prevent or minimize disorderly conduct within the establishment;

6. Specific measures the permittee must undertake to remove trash attributable to the establishment or its patrons in and around the establishment, the surrounding neighborhood and the public right of way;

7. Specific measures the permittee must undertake to prevent the entertainment and its patrons from disturbing the peace and quiet of the surrounding neighborhood;

8. Specific measures the permittee must undertake to provide video camera surveillance of public areas, including but not limited to the front and rear of the business with full view of the public rights-of-way and any parking lot under the control of the permittee. The video system must be capable of delineating on playback the activity and physical features of persons and areas within the exterior of the premises. Recordings shall be accessible via the Internet by the Long Beach Police Department;

9. Specific measures the permittee must undertake to prevent its patrons from engaging in disorderly conduct in the surrounding neighborhood;

10. Whether the Director of Financial Management must receive advance notice of the date of a particular event if that event is not held as part of the regularly scheduled events of the business; or

11. Other matters related to public health, safety and welfare.

K. Conditions shall be based on specific and articulable facts reasonably related to insuring the public health, safety and welfare, including, but not limited to, the protection of minors from alcohol and other criminal activity, the conservation of limited City public safety resources and the

prevention of public nuisance activity that detracts from the peace and quiet of residential neighborhoods.

L. Conditions shall be listed on, or attached to, the permit.

M. The City Council shall give the permittee an opportunity to review any proposed conditions and the City Council shall consider the input of the permittee prior to imposing those conditions.

N. Conditions may not be imposed that conflict with any local, state or federal law, or that conflict with the permittee's ABC license. Nothing in this Subsection is intended to prevent the City Council from imposing any condition related to the age of patrons inside an ABC establishment if the ABC license does not address that issue. The intent of this Subsection is to allow the sale and service of food to minors in a bona fide public eating place (ABC license types 41, 47 and various club licensed premises) with reasonable conditions placed on the permit to prevent curfew violations and protect the minors from alcohol and other criminal activity.

O. The City Council may require the applicant to demonstrate compliance with applicable existing special permits prior to issuance of the permit or may issue the permit conditioned upon the applicant obtaining any other additional necessary special permit or other city, county or state approval.

P. No condition may be imposed pursuant to this Chapter that suppresses or regulates expression in any manner contrary to law.

Q. Imposition of any particular condition is appealable through the procedures set forth in Section 5.06 of the Long Beach Municipal Code.

R. Notwithstanding City Council approval of the application for the permit, the applicant shall not operate until a permit is actually issued by the Director of Financial Management. Upon approval of the application, the Director of Financial Management shall issue the permit, provided that the applicant has met all conditions imposed by any City department, has complied with all applicable laws, and has paid the applicable license tax and permit fees. The applicant shall have a maximum one hundred eighty (180) days after City Council approval to meet all applicable conditions. Failure to do so within that period shall render the City Council approval void, unless an extension of the compliance period is granted by the City Council before the compliance period has expired. (ORD-12-0021(Emerg.), § 1, 2012; ORD-12-0018(Emerg.), § 1, 2012; Ord. C-7747 § 1, 2001; Ord. C-7434 § 1, 1996; Ord. C-7423 § 26, 1996)

5.72.120.5 Duration of Permit.

A permit issued pursuant to this Chapter shall be valid for an indefinite duration, subject to administrative review by Financial Management every two (2) years. If grounds exist for modification, revocation or suspension of the permit, a hearing shall be held for that purpose. This provision does not affect the City's ability to modify, revoke or suspend a permit at any time pursuant to Section 5.72.145 of the Long Beach Municipal Code. (ORD-12-0021(Emerg.), § 2, 2012; ORD-12-0018(Emerg.), § 6, 2012)

5.72.120.6 Permits issued prior to the effective date of ordinance.

A permit issued prior to the effective date of the Ordinance codified in this Section shall be valid until the expiration date specified in the permit. Thereafter, permittees shall be subject to the provisions of this Chapter. Nothing in this Subsection shall interfere with the City's ability to modify, revoke or suspend a permit at any time pursuant to Section 5.72.145 of the Long Beach Municipal Code. (ORD-12-0021(Emerg.), § 3, 2012; ORD-12-0018(Emerg.), § 7, 2012)

5.72.121 Permit application filing and process for adult entertainment.

A. Any business or establishment desiring a permit required by this Chapter to provide adult entertainment as described in Subsection 5.72.115.B, shall complete and file the application form supplied by the City and shall accompany the form with the fee established by resolution of

the City Council, which fee shall be no more than necessary to cover the costs of processing and investigating the application.

B. Application requirements. The application form shall require and the applicant shall provide information which includes the following:

1. The business owner's name, residence street address and mailing address, if different, and any and all aliases;

2. The name under which the entertainment business is to operate;

3. The telephone number of the entertainment business and the address and legal description of the parcel of land on which the entertainment business is to be located;

4. The date on which the owner acquired the enterprise for which the permit is sought and the date on which the enterprise began or will begin operations at the location for which the permit is sought;

5. A statement whether the owner previously operated in this or any other county, city or state under an entertainment establishment license/permit or similar business license, and whether the applicant has ever had such a license revoked or suspended and the reasons therefor, and the business entity or trade name under which the applicant operated that was subject to the suspension or revocation;

6. If the owner is a corporation, all of the aforementioned information shall be provided for each officer and director of the corporation as well as for any person, or other entity holding over fifty percent (50%) of the shares of the corporation;

7. If the owner is a partnership, the aforementioned information shall be provided for each general partner;

8. A statement under penalty of perjury that the owner has personal knowledge of the information contained in the application and that the information contained is true and correct, and that the application has been completed under the owner's supervision;

9. An initialized list of the operational requirements of a business providing entertainment and a signed, sworn statement that the owner has read, understands and intends to comply with the aforementioned operational requirements;

10. A description of all entertainment business activities proposed to occur on the site of the entertainment business and the anticipated occupancy of the entertainment business;

11. A site plan describing the building and/or unit proposed for the entertainment facility and a fully dimensioned interior floor plan;

12. If the premises are being rented or leased or are being purchased under contract, a copy of such lease or contract.

C. Within seven (7) days of receipt of an application the Director of Financial Management or designee shall determine whether the application contains all the information required by the provisions of this Chapter. If it is determined that the application is not complete, the applicant shall be notified in writing within ten (10) business days of receipt of the application that the application is not complete and the reasons therefor, including any additional information necessary to render the application complete. The applicant shall have thirty (30) calendar days to submit additional information to render the application complete. Failure to do so within the thirty (30) day period shall render the application null and void. Within five (5) business days following the receipt of an amended application or supplemental information, the Director of Financial Management or designee shall again determine whether the application is complete in accordance with the procedures set forth above. Evaluation and notification shall occur as provided above until such time as the application is found to be complete. Once the application is found to be complete, the applicant shall be notified within five (5) business days of that fact. All notices required by this Section shall be deemed given upon the date they are either deposited in the United States Mail or the date upon which personal service of such notice is provided.

D. Issuance of permit—Investigation.

1. Determination to issue permit. Upon receipt of a completed application for the permit,

the Director of Financial Management or designee shall conduct an investigation to determine if the proposed business is in compliance with the provisions of this Chapter. Within thirty (30) calendar days of a completed application having been filed, the Director of Financial Management or designee shall approve and issue the permit if all the requirements of this Section have been met. If the Director of Financial Management or designee determines that the application does not satisfy the requirements of this Chapter, he/she shall deny the application. On the day the decision is made, the applicant shall immediately be served with written notice of the decision either personally or by deposit in the United States Mail, first-class postage prepaid, at the address shown on the application. Service shall be deemed complete upon personal service or deposit of the written notice in the United States Mail. A temporary license will automatically be issued in the event the City does not approve or deny the permit within the time period established by this Section.

2. Standards for approval of permit. The Director of Financial Management or designee shall approve and issue an entertainment permit if the application and evidence submitted demonstrates that:

a. The place of entertainment is not located within three hundred feet (300') from any residential zoning district or residential planned development district within the City; or within one thousand feet (1,000') of any public or private school (kindergarten through twelfth grade) located within the City; or within six hundred feet (600') of a City park; or within five hundred feet (500') of a church (as defined in Section 21.15.510 of the Long Beach Municipal Code); or within one thousand feet (1,000') of any other adult entertainment business; or within the areas set forth in Subsection 21.45.110.F of the Long Beach Municipal Code. All measurements set forth above shall be made in a straight line, without regard to intervening structures or objects, from the nearest point on the property line of the adult entertainment business to the nearest point on the property line of the residential zone, school, church, park or other adult entertainment business, as applicable.

b. No owner, operator or manager shall permit any entertainer or employee on the premises of the adult entertainment business to engage in a showing of the human male or female genitals, pubic hair, anus, cleft of the buttocks, or vulva with less than a fully opaque covering and/or covered male genitals in a turgid state. This provision may not be complied with by applying an opaque covering simulating the appearance of the specific anatomical part required to be covered.

c. No owner, operator or manager shall permit any person to perform for patrons any entertainment except upon a stage at least eighteen inches (18") above the level of the floor which is separated by a distance of at least six feet (6') from the nearest area occupied by patrons, and no patron shall be permitted within six feet (6') of the stage while the stage is occupied by an entertainer.

d. No owner, operator or manager shall permit any person under the age of eighteen (18) years within the premises at any time during the hours of operation.

e. All indoor areas of the place of entertainment in which patrons are permitted, except restrooms, will be open to plain view, unaided by mirrors, electronic monitoring devices or other devices at all times from all public portions of the establishment.

f. At least one (1) permitted, authorized security guard shall be on duty within the premises at all times while the adult entertainment business is open for business. The security guard shall be charged with preventing violations of the law and enforcing compliance by patrons with the requirements of this Chapter. No security guard required pursuant to this Subsection shall act as a door person, ticket seller, ticket taker or attendance person while acting as a security guard.

g. The premises within which the entertainment is located shall provide sufficient sound absorbing insulation so that noise generated inside the premises shall not be audible anywhere on the adjacent property or public rights-of-way or within any other building or other separate unit within the same building.

h. The place of entertainment shall have a manager on-premises at all times while the establishment is open to the public.

i. If the place of entertainment is licensed to serve alcoholic beverages, the permittee shall abide by the rules and regulations set forth by the California Department of Alcoholic Beverage Control.

j. The stage or entertainment areas shall not be open to view from outside the premises.

k. Permanent barriers shall be installed and maintained to screen the interior of the premises from public view for each door used as an entrance/exit to the business.

l. No exterior door or window shall be propped or kept open at any time during the hours of operation.

m. Any exterior windows shall be covered with opaque covering.

n. All areas of the place of entertainment accessible to patrons shall be illuminated at least to the extent of two (2) foot-candles, minimally maintained and evenly distributed at ground level.

o. The place of entertainment shall have a door person on the premises at all times the establishment is open to the public who shall check photo identification of all persons entering the premises to ensure that no person under the age of eighteen (18) is permitted on the premises.

p. The place of entertainment shall provide video camera surveillance of public areas, including but not limited to the front and rear of the business with full view of the public rights-of-way and any parking lot under the control of the permittee. The video system must be capable of delineating on playback the activity and physical features of persons and areas within the exterior of the premises. Recordings shall be accessible via the Internet by the Long Beach Police Department.

q. The adult entertainment business shall not operate between the hours of two o'clock (2:00) a.m. and nine o'clock (9:00) a.m. (ORD-12-0018(Emerg.), § 2, 2012; Ord. C-7747 § 2, 2001)

5.72.125 Temporary permit.

A. The Director of Financial Management shall issue a temporary entertainment permit for no more than ninety (90) days to a new business or an existing business with new ownership where the previous owner had a valid entertainment permit, not involving adult entertainment as defined in Title 21 of the Long Beach Municipal Code, if he or she finds:

1. The applicant is an individual or lawfully created business entity having a valid ownership interest in the business;

2. No suspensions, denials or revocations of an entertainment permit have occurred at the location in the past twelve (12) months before the application date;

3. The applicant has also applied for a regular entertainment permit for the same location;

4. The owner of the property on which the entertainment is to be conducted has consented in writing to the application for the temporary permit.

B. A temporary permit shall automatically expire ninety (90) days from date of issuance or when an application for a regular entertainment permit is approved or denied by the City Council, whichever occurs first. Where circumstances justifiably delay the hearing before the City Council on the regular entertainment permit, the City shall grant one thirty (30) day extension of the temporary permit until the regular entertainment permit is heard by the City Council. A temporary permit may be revoked or suspended pursuant to Chapter 5.06 of the Long Beach Municipal Code.

C. At the time a temporary permit is issued, the applicant shall agree to comply with all temporary operating conditions imposed. The applicant shall also agree to hold the City harmless for liability/damages arising from any contractual agreements or investments made by the applicant which may assume the eventual issuance of an unrestricted permit.

D. The applicant shall at all times during operation under the temporary permit comply with the following conditions. In issuing the permit, the Director of Financial Management may impose conditions relating to the operation of the entertainment establishment. Conditions may relate to:

1. The days, hours and location of operation;

2. Restrictions designed to prevent minors from obtaining alcohol, such as separate entrances, exits, and restroom facilities on the premises;

3. The number and age of persons allowed on premises;

4. Whether licensed security guards are required, and if so, how many;

5. Specific measures the permittee must undertake to control the conduct of patrons so as to prevent or minimize disorderly conduct within the establishment;

6. Specific measures the permittee must undertake to remove trash attributable to the establishment or its patrons in and around the establishment, the surrounding neighborhood and the public right of way;

7. Specific measures the permittee must undertake to prevent the entertainment and its patrons from disturbing the peace and quiet of the surrounding neighborhood;

8. Specific measures the permittee must undertake to provide video camera surveillance of public areas, including but not limited to the front and rear of the business with full view of the public rights-of-way and any parking lot under the control of the permittee. The video system must be capable of delineating on playback the activity and physical features of persons and areas within the premises. Recordings shall be accessible via the Internet by the Long Beach Police Department.

9. Specific measures the permittee must undertake to prevent its patrons from engaging in disorderly conduct in the surrounding neighborhood;

10. Whether the Director of Financial Management must receive advance notice of the date of a particular event if that event is not held as part of the regularly scheduled events of the business; or

11. Other matters related to public health, safety and welfare.

E. A nonrefundable fee, as set by City Council resolution, shall be paid to the City when the application for a temporary permit is filed. (ORD-12-0018(Emerg.), § 3, 2012; Ord. C-7423 § 26, 1996)

5.72.126 Reserved.

Editor's note—ORD-12-0018(Emerg.), § 8, adopted Dec. 4, 2012, repealed § 5.72.126, entitled "Short-term permit", which derived from: Ord. C-7434 § 2, 1996; and Ord. C-7461 § 5, 1997.

5.72.130 Permits for occasional events.

A. Unless a permit has been approved and issued by the City Council or Director of Financial Management as outlined above, any entertainment activity as defined within this Chapter requires an occasional event permit, issued by the Director of Financial Management or his/her designee pursuant to the provisions of this Section.

B. An occasional event permit shall not be issued for any premises or location more than twenty-four (24) times within any twelve (12) month period, and events for which occasional event permits are issued must be at least ten (10) days apart. This prohibition shall not apply to any parks and recreation or other City operated facility.

C. Applications for occasional event permits will be accepted for consideration only if the following requirements have been met. Failure to meet any of these requirements will render the application incomplete/void. Incomplete or void applications will not be processed:

1. The application shall be submitted no more than thirty (30) business days and no less than ten (10) business days prior to the event.

2. The applicant shall pay the filing fee, as established by resolution of the City Council, at the time the application is filed with the City.

3. All parties to the application must be at least eighteen (18) years of age.

4. The application must be accompanied by lease/rental agreements, security contracts, and any other supporting documentation as required by the Director of Financial Management.

D. An occasional event permit shall be issued by the Director of Financial Management only after he/she has determined the following:

1. The peace and quiet of the neighborhood will not be disturbed.

2. Adequate security, as determined by the Director of Financial Management, has been afforded.

a. Where professional security services have been required, a written contract must be obtained and submitted to the Director of Financial Management no less than five (5) days prior to the scheduled event.

b. The contract must contain such information as the Director of Financial Management may require, including, but not limited to:

(i) The event location;

(ii) The date and specific hours of the event;

(iii) The number of guards assigned; and

(iv) A statement that the guards will be uniformed or non-uniformed and armed or unarmed.

c. The security contract must be signed by the permit applicant and by a duly authorized representative of a private patrol operator, as licensed by the State of California Department of Consumer Affairs, who is in possession of a Long Beach City business license, issued pursuant to Chapter 3.80 of the Long Beach Municipal Code.

3. That all prerequisite requirements of other agencies or departments have been met.

4. In making a determination of whether or not to issue an occasional event permit, the Director of Financial Management may inspect the premises and site at which the event is to take place. The Director of Financial Management may also consider prior complaints, police service calls and other relevant information related to prior events on the premises.

E. An occasional event permit for a nonprofit fundraising event shall not be approved unless and until a charitable solicitation permit has been obtained pursuant to Chapter 5.28 of the Long Beach Municipal Code.

F. Where a promoter has been engaged to market, advertise or conduct the event, said promoter must obtain a City business license prior to approval of the occasional event permit. If the event is a charitable event, then the promoter must also comply with all applicable requirements of Chapter 5.28 of the Long Beach Municipal Code.

G. As a condition of occasional event permit issuance, the permittee agrees to reimburse the City:

1. Whenever excessive police services, as determined by the Director of Financial Management, are required as the result of any incident or nuisance arising out of or in connection with the permitted event; and

2. For costs associated with the removal of signs posted in connection with the event, whether or not the signs had been permitted by any City department, as outlined in Chapter 21.44 of the Long Beach Municipal Code.

H. In no event shall the issuance of an occasional event permit by the Director of Financial Management be construed as permission to disturb the peace. Permits may be denied or revoked by the City if it is determined that the event sponsor or any agent, employee or associate of any such event organizer has willfully made any false or misleading statement in an application or has not fully complied with the requirements of this Chapter or has violated any of the provisions of this Chapter or the provisions of any other applicable law, rule or regulation. (ORD-12-0018(Emerg.), § 4, 2012; ORD-10-0016, § 1, 2010; Ord. C-7423 § 26, 1996)

5.72.135 Permit nontransferable.

A. Any permit issued pursuant to this Chapter 5.72 shall not be transferred or assigned to another person for any purpose. Any change in ownership shall require a new permit. Regardless of any change in ownership, the permittee shall be required to notify the Director of Financial Management of any change in the business name.

The following shall be deemed a change of ownership:

1. For general partnership personnel, the addition or substitution of a new partner;

2. For a limited partnership, the addition or substitution of a new partner or the addition or substitution of a general partner not listed as a partner in the application for the permit previously approved;

3. For a corporation, more than fifty percent (50%) of the shares of stock is transferred to or acquired by persons other than those designated in the application for the permit previously approved.

B. Any permit issued pursuant to this Chapter 5.72 shall not be transferred to any other location for any purpose. Any change in location shall require a new permit. The following shall be deemed a change in location:

1. Any relocation or expansion that includes a separate piece of property or parcel of land.

2. Any expansion of the initially permitted premises which represents a greater than fifty percent (50%) increase in the square footage of space devoted to public access or occupancy.

C. The lawful conduct of activity regulated by this Chapter by a permittee shall be limited to those activities expressly indicated on the permit application and approved by the City Council. Any change in entertainment activity which exceeds the parameters of the approved permit will require the approval of the City Council or, on a limited basis, the approval of an exclusive event permit, as provided within this Chapter 5.72.

D. The holder of an entertainment permit shall not allow others to use or rent his/her permitted premises for dancing or other entertainment uses. This restriction shall not apply to a location which is additionally licensed for hall rental. (Ord. C-7423 § 26, 1996)

5.72.140 Conditions of operation.

Any person operating under a permit issued pursuant to this Chapter shall, at all times, observe the following conditions of operations:

A. Hours. No person shall carry on, maintain or conduct any business or activity regulated by this Chapter between the hours of two o'clock (2:00) a.m. and six o'clock (6:00) a.m.; except that this restriction shall not apply on New Year's Eve or to a graduation dance sponsored by a State-accredited school.

B. Inspection. The premises where all businesses or activities are conducted pursuant to this Chapter, whether public or private, shall at all times when open be subject to inspection by the Director of Financial Management or his/her designee, all business license, health, building, and fire inspectors, and all police personnel in the pursuit of their official duties. No person shall hinder or obstruct such inspection. The purpose of the inspection is to determine whether the permitted premises is being operated in compliance with all requirements of applicable law. Delay or obstruction of such inspection may be grounds for suspension or revocation of any license or permit issued by the City.

C. Adult entertainment. Any person operating any adult entertainment business (as that term is defined in Section 21.15.110) shall, at all times, observe the following conditions of operations:

1. No owner, operator or manager shall permit any entertainer or employee on the premises of the adult entertainment business to engage in a showing of the human male or female genitals, pubic hair, anus, cleft of the buttocks, or vulva with less than a fully opaque covering, and/or the female breasts with less than a fully opaque covering over any part of the nipple or areola and/or covered male genitals in a turgid state. This provision may not be complied with by applying an opaque covering simulating the appearance of the specific anatomical part required to be covered.

2. No owner, operator or manager shall permit any entertainer or employee on the premises of the adult entertainment business to have intentional physical contact with any patron.

3. No owner, operator or manager shall permit any person to perform for patrons any entertainment except upon a stage at least eighteen inches (18") above the level of the floor which is separated by a distance of at least six feet (6') from the nearest area occupied by patrons, and no patron shall be permitted within six feet (6') of the stage while the stage is occupied by an entertainer.

4. No owner, operator or manager shall permit any person under the age of eighteen (18) years within the premises at any time during the hours of operation.

5. All indoor areas of the place of entertainment in which patrons are permitted, except restrooms, will be open to plain view, unaided by mirrors, electronic monitoring devices or other devices at all times from all public portions of the establishment.

6. At least one (1) permitted, authorized security guard shall be on duty within the premises at all times while the adult entertainment business is open for business. The security guard shall be charged with preventing violations of the law and enforcing compliance by patrons with the requirements of this Chapter. No security guard required

pursuant to this subsection shall act as a door person, ticket seller, ticket taker or attendance person while acting as a security guard.

7. The premises within which the entertainment is located shall provide sufficient sound absorbing insulation so that noise generated inside the premises shall not be audible anywhere on the adjacent property or public rights-of-way or within any other building or other separate unit within the same building.

8. The place of entertainment shall have a manager on-premises at all times while the establishment is open to the public.

9. If the place of entertainment is licensed to serve alcoholic beverages, the permittee shall abide by the rules and regulations set forth by the California Department of Alcoholic Beverage Control.

10. The stage or entertainment areas shall not be open to view from outside the premises.

11. Permanent barriers shall be installed and maintained to screen the interior of the premises from public view for each door used as an entrance/exit to the business.

12. No exterior door or window shall be propped or kept open at any time during the hours of operation.

13. Any exterior windows shall be covered with opaque covering.

14. All areas of the place of entertainment accessible to patrons shall be illuminated at least to the extent of two (2) foot-candles, minimally maintained and evenly distributed at ground level.

15. The place of entertainment shall have a door person on the premises at all times the establishment is open to the public who shall check photo identification of all persons entering the premises to ensure that no person under the age of eighteen (18) is permitted on the premises.

16. The place of entertainment shall provide a security system that visually records and monitors all parking lot areas serving the place of entertainment.

17. The adult entertainment business shall not operate between the hours of two o'clock (2:00) a.m. and nine o'clock (9:00) a.m. (Ord. C-7747 § 3, 2001: Ord. C-7713 § 2, 2000: Ord. C-7591 § 1, 1999: Ord. C-7423 § 26, 1996)

5.72.145 Suspension, denial or revocation.

A. Noncompliance. Failure to comply with any of the provisions of this Chapter 5.72, including any conditions attached to the permit at the time of approval, will constitute grounds for suspension, denial, or revocation of the permit. The suspension or revocation of the permit shall be governed by the provisions of Chapter 5.06 of this Code.

B. Cease activity. No person shall conduct any business or activity regulated by this Chapter during the pendency of a permit application, except as permitted by Section 5.72.125, or at any time after permit denial or revocation or during the time a permit therefor has been suspended, except as permitted by Subsection 5.72.145.C.

C. In the event that an entertainment permit for an adult entertainment business is suspended, denied, or revoked, the applicant or permittee may file or cause to be filed a petition for writ of mandate in State court regarding the validity of the suspension, denial or revocation. In the event the applicant or permittee files such legal action within fifteen (15) days of the suspension, denial or revocation of the permit, the applicant or permittee shall be permitted to operate its business until a decision is issued by a trial court, notwithstanding provisions to the contrary contained in this Chapter. During such time period, the business must be operated in a manner not to create a public nuisance, and such operation must comply with all other State and City laws and regulations. (Ord. C-7747 § 4, 2001: Ord. C-7591 § 2, 1999: Ord. C-7423 § 26, 1996)

5.72.150 Permit reapplication.

Whenever a permit has been revoked or an application for a permit has been denied, no other similar application shall be considered for a period of one (1) year from the date of such revocation or denial.

This applies to any person whose permit was revoked or whose application was denied who later becomes a director or officer of a corporation, profit or nonprofit, or a member of a partnership or a person owning or possessing fifty percent (50%) or more of the shares of a corporation which seeks to obtain a new permit. This shall also apply to a corporation, profit or nonprofit, whose permit was revoked or application denied, to any of its directors or officers or to any person who owned fifty percent (50%) or more of its shares, who attempts by way of a new corporation or by the use of their individual names or by becoming a member of a partnership or a director or officer or a person owning or possessing fifty percent (50%) or more of the shares in another corporation to obtain a new permit. Whenever any permit is suspended, the provisions of this Section shall apply to the permittee during the period of suspension. (Ord. C-7423 § 26, 1996)

5.72.155 Initiative ordinance.

The following initiative ordinance was approved by the qualified electors of this City at an election held on the sixteenth day of August, 1932 as required by Ordinance No. C-1148. The placing of this initiative ordinance in this Code shall not be construed as altering, amending, or repealing such ordinance. Any violation of the provisions of the initiative ordinance shall not be deemed a violation of any of the provisions of this Code, but shall be deemed a violation of the initiative ordinance and punishable as therein provided.

ORDINANCE NO. - An ordinance regulating public dance halls and public dances in the City of Long Beach, California, providing penalties for the violation of this ordinance and repealing Ordinance No. B-1118, and all other ordinances or parts of ordinances in conflict with this ordinance.

The people of the City of Long Beach ordain as follows:

SECTION 1 - "Public dance hall" as used herein is defined to be any room place or space, excepting a private residence or home, where dancing is held or carried on; and "public dance" as used herein is defined to be any dance not held or given in private home or residence.

SECTION 2 - No person, as principal, agent or otherwise, shall carry on, maintain or conduct, or assist in carrying on, maintaining or conducting a public dance hall or a public dance in the City of Long Beach at any time between the hours of 2:00 o'clock a.m. and 6:00 o'clock a.m., except on New Year's Eve, or without first having filed with the Chief of Police a written schedule showing the time of commencing and the time of closing of all regular dances or without filing with the Chief of Police a written notice showing the time of commencing and time of closing of every dance carried on other than regular dances, at least forty-eight (48) hours previous to the holding of such dance.

SECTION 3 - No person, as principal, agent or otherwise, carrying on, maintaining or conducting, or assisting in carrying on, maintaining or conducting, a public dance hall, or a public dance in the City of Long Beach, shall permit any person under the age of seventeen (17) years to be present in any public dance hall or to participate in any public dance, unless accompanied by the parent or legal guardian of such person; or to permit any person to indulge in boisterous conduct or use profanity, or otherwise conduct himself or herself in a vulgar or indecent manner in such a public dance hall or in any of the hallways leading thereto; no intoxicated person shall be present in any public dance hall or at any public dance.

SECTION 4 - Every person seeking admission to a public dance hall or to any public dance shall, upon the request of the manager, proprietor or door keeper, or managing agent of the proprietor of such public dance hall or public dance, register his/her true name, age and address in his/her own handwriting.

SECTION 5 - Every person, as principal, agent or otherwise violating any of the provisions of this ordinance, shall be deemed guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine of not exceeding five hundred dollars ($500.00) or by imprisonment not exceeding six (6) months, or by both such fine and imprisonment.

SECTION 6 - Ordinance No. B-1118, and all other ordinances or parts of ordinances in conflict with this ordinance are hereby repealed.

SECTION 7 - The City Clerk shall certify to the passage of this ordinance by the People of the City of Long Beach. (Ord. C-7461 § 6, 1997; Ord. C-7423 § 26, 1996)

Note—Prior ordinance history: Ord. C-6260.

5.72.200 Downtown Dining and Entertainment District.

The Downtown Dining and Entertainment District (the "DDED") shall be established to provide consistent standards for the co-existence of residential and entertainment uses in Downtown Long Beach.

The DDED's boundaries are set forth in Long Beach Municipal Code Section 5.72.210.

Portions of the DDED are within the boundaries of PD 30 (Downtown Plan), which establishes a mix of uses, including residential, office, commercial, restaurant, retail and entertainment uses (the "DT Plan").

A. Definitions.

"Ambient Music" shall mean low-level background music, whether amplified or not amplified, which is audible from a distance of no more than ten feet (10') from any portion of the exterior of the premises, and which is intended to create ambiance and is not intended to entertain. Ambient Music does not include music played by a disc jockey or DJ. An entertainment permit is not required for Ambient Music.

"Amplified Music" shall mean electronically enhanced music which is audible from a distance of no more than fifty feet (50') from any portion of the exterior of the premises, and which is intended to entertain.

"Entertainment" as used here shall have the same definition as "entertainment activity" contained in Long Beach Municipal Code Section 5.72.115.

"Nightclub" shall have the same definition as "nightclub" contained in Long Beach Municipal Code Section 21.15.1855. A "nightclub" in the DT area within the DDED must apply for and obtain a Conditional Use Permit as required by Long Beach Municipal Code Section 21.25.206 and consistent with the Downtown Plan. This does not include nightclubs south of Ocean Boulevard as they are not in PD 30.

All other establishments desiring entertainment permits in the DDED must, in addition to the requirements of Sections 5.72 and 21.15.110, agree in writing to comply with the conditions of the DDED as set forth below.

B. Standard Conditions.

1. Individuals and business entities who apply for and obtain entertainment permits ("Permittees") shall comply with all applicable laws, regulations, ordinances and stated conditions. If Permittee fails to comply with the conditions of this permit, or if his or her operations result in excessive police service as defined below, Permittee will be required to operate under the more restrictive conditions described in Paragraph C, "Tiered Conditions," without further hearing.

2. When the Chief of Police determines that excessive police services are required as the result of any incident or nuisance arising out of or in connection with Permittee's operations, the cost of such services shall be billed to Permittee as an expense of an emergency response. "Expense of an emergency response" means those costs incurred by the City of Long Beach in making any appropriate emergency response to the incident, and shall be comprised of all costs directly arising because of the response to the particular incident, including, but not limited to, the costs of providing police, firefighting, rescue, and emergency med-

ical services at the scene of the incident, as well as the salaries of the personnel responding to the incident.

3. Indoor entertainment and outdoor Ambient Music that otherwise conforms with the requirements of state and local laws and regulations may be offered until 2:00 a.m., seven (7) days a week.

4. Outdoor Amplified Music, including entertainment activity on rooftop patios or areas with sidewalk-occupancy permits, must be applied for and will be considered separately from indoor entertainment. Outdoor amplified entertainment, if permitted, will be subject to the following restrictions: a) sound amplifying equipment may be used only between 10:00 a.m. and 10:00 p.m. Sunday through Thursday, and 10:00 a.m. and midnight Friday and Saturday; b) in conjunction with an Occasional Event Permit, pursuant to Long Beach Municipal Code section 5.72.130; or c) in conjunction with a special events permit. Permittee agrees that the following standard is reasonable: Noise emanating from Permittee's premises shall not be unreasonably loud or disturbing in light of the facts and circumstances then prevailing within fifty feet (50') of the perimeter of the premises in all directions.

5. Permittees shall place or post conditions on the premises in a place easily accessible by City staff, including law enforcement personnel.

6. Each holder of an existing entertainment permit within the DDED and each new applicant for a DDED, including an applicant who acquires an existing business through a change of ownership, shall, within ninety (90) days of application, be required to acknowledge that he or she has read, understood and agreed to the conditions of the permit. Each new applicant for a DDED permit, including an applicant who acquires an existing business through a change of ownership, shall, within ninety (90) days of application, submit proof of attending the LEAD program offered by the Department of Alcoholic Beverage Control.

7. Permittees shall be responsible for all entertainment activities at the location, including those conducted by promoters. Each Permittee and promoter conducting business within the City of Long Beach shall obtain a City of Long Beach Business License prior to conducting entertainment activities governed by a DDED permit. Permittee shall provide all promoters and agents hired to conduct entertainment activities with a copy of the approved permit, which shall include a copy of the approved conditions of operation. In addition, promoters must have or obtain a Promoter's License. Once the Promoter's License has been approved, the promoter will be added to a list of approved promoters in the City of Long Beach.

8. If Permittee utilizes an independent third party event promoter to provide entertainment related services resulting in any public safety call for service, the City reserves the right to remove and/or restrict the use of independent third party promoters.

9. The operation of the establishment shall be limited to those activities expressly indicated on the entertainment permit application and approved by the City Council. Any change in the operation that exceeds the conditions of the approved permit will require approval by City Council.

10. Permittee shall conduct all aspects of his or her operation, including before- and after-hours deliveries and maintenance, in consideration of residences located nearby.

11. Permittee agrees that the following standard is reasonable: Noise emanating from Permittee's premises shall not be unreasonably loud or disturbing in light of the facts and circumstances then prevailing within fifty feet (50') of the perimeter of the premises in all directions. Sound and amplification equipment shall be monitored during business hours to ensure that audible noise remains at acceptable levels in accordance with Long Beach Municipal Code Chapter 8.80.

12. On and after the date this ordinance takes effect, applicants for new entertainment permits in the DDED must cause an acoustical study to be prepared by a qualified, certified acoustical engineer, hired by the applicant and acceptable to the City, which shall demonstrate the sound emanating from the applicant's establishment meets the

sound standards described in Long Beach Municipal Code Chapter 8.80. The study shall be reviewed and confirmed by the Health Department and the Development Services Department during their review of the permit application.

13. A new applicant for an entertainment permit in the DDED, including an applicant who acquires an existing business through a change of ownership, may be eligible to request a waiver of the requirement to conduct a sound study if the applicant meets one of the following criteria:

a. The location had an entertainment permit, and no more than twelve (12) months have elapsed since the permitted entertainment at that location ceased; or

b. Verifiable evidence that best sound mitigation practices were used in the construction or retrofitting of the location.

14. The waiver request shall be presented to a committee comprised of representatives of the City's noise office, business license bureau and zoning administration, who will conduct a hearing to determine if the sound study waiver is appropriate for the location. The committee shall consider but not be limited to the following: the previous use of the location, the history of sound-related complaints and violations at the location, proximity to residential development and the age and condition of the building, including sounds mitigation efforts. The committee shall determine if the waiver request shall be granted or denied.

15. Denial of a waiver request may be appealed to a City hearing officer pursuant to Long Beach Municipal Code Section 2.93.050.

16. No adult entertainment, as defined by Long Beach Municipal Code Subsection 5.72.115.B, shall be conducted on the permitted premises. Permittees shall not allow, permit, procure, or encourage, anyone to expose male or female genitals, cleft of the buttocks, the areola or any portion of the female breast below the areola, while at or inside the business.

17. Current occupancy loads shall be posted at all times, and Permittee shall have an effective system to keep count of the number of occupants present at any given time and provide that information to public safety personnel upon request, as required by Long Beach Municipal Code Section 18.48.200.

18. If Permittee's operations give rise to a substantial increase in complaints/calls for police service, Permittee shall increase security staff, implement the use of electronic metal detection equipment, increase outside lighting, or make other changes to the premises or operation as the Chief of Police determines are necessary to protect the safety of the public. In the event of a conflict on this issue between the requirements of this permit and any permit issued by the Alcoholic Beverage Commission, the more stringent regulation shall control.

19. Permittee shall be responsible for maintaining an adequate security staff to supervise patrons and those waiting to enter. Potential patrons awaiting entry in a defined "queue" shall be counted toward the calculation of required security staffing levels. For up to fifty (50) people inside (or in a defined queue waiting to enter) an establishment, the Permittee shall provide a minimum of one (1) uniformed licensed security guard per floor. There shall be one (1) additional guard for each subsequent increment or each partial increment of fifty (50), plus one (1) guard per each additional floor. The Chief of Police may relax these staffing levels during daylight hours, or during hours in which the primary activity in the establishment is dining, if he determines that a lower level of security staffing is consistent with the protection of public health and safety. The attire of each security guard shall clearly indicate the guard's affiliation with the establishment by means of a pin, shirt, or other clearly-visible form of identification.

20. Restaurants with alcohol and entertainment in the DDED must be operated and maintained as bona fide eating places, making actual and substantial sales of meals, during at least one (1) full normal mealtime, at least five (5) days a week. Normal mealtimes are 6:00 a.m. - 9:00 a.m., 11:00 a.m. - 2:00 p.m., and 6:00 p.m. - 9:00 p.m, or as defined in the Permittee's ABC license. Minors are only allowed on the premises during mealtime hours.

21. Persons under eighteen (18) years of age shall not be permitted to enter nor permitted to remain on the premises after 10:00 p.m., unless accompanied by a parent or legal guardian.

22. Permittee shall establish a program to discourage loitering and littering outside any of the entrance/exit doors at all times open for business.

23. Permittee shall take steps to prevent patrons from loitering in the immediate area, littering or making excessive noise at the conclusion of each event and at closing time.

24. Permittee shall not distribute, post or attach, and shall be responsible for ensuring that its promoters and or agents do not distribute, post or attach, advertising matter on public property or on any vehicle on public property.

25. Any graffiti painted or marked upon the premises or on any adjacent area under the control of Permittee shall be removed or painted over within twenty-four (24) hours of being applied.

26. Permittee shall install and maintain a video surveillance system that monitors no less than the front and rear of the business with full view of the public rights-of-way and any parking lot under the control of the Permittee. The video system must be capable of delineating on playback the activity and physical features of persons and areas within the premises. Recordings shall be retained for a minimum of thirty (30) days and be accessible via the Internet by the Long Beach Police Department. A Public Internet Protocol (IP) address and user name/password is also required to allow the Long Beach Police Department to view live and recorded video from these cameras over the internet. All video security cameras shall be installed to the satisfaction of the Chief of Police, Director of Technology Services, and Director of Development Services. At the discretion of the Chief of Police, Permittee may be required to add additional video cameras.

27. Insofar as is practicable, during the hours of operation, the front door of the establishment, or any door fronting on a public right-of-way, including an alley, shall remain closed at all times to minimize noise.

28. Windows shall not be obscured by the placement of signs, including signs advertising alcoholic products, dark window tinting, shelving, racks or similar obstructions.

29. Permittee shall install an alarm system at the exit doors.

30. No publicly accessible telephones shall be maintained on the exterior of the premise. Any existing publicly accessible telephones shall be removed prior to the issuance of the permit.

31. As a condition of any City approval, Permittee shall defend, indemnify and hold harmless the City of Long Beach, its agents, officers and employees from any claim, action or proceeding against the City of Long Beach or its agents, officers or employees to attack, set aside, void or annul the approval of the City concerning the processing of the permit or any action relating to or arising out of such approval. At the discretion of the City and with the approval of the City Attorney, a deposit of funds by the permit applicant may be required in an amount sufficient to cover the anticipated litigation costs.

32. Permits may be administratively reviewed by the City within six (6) months from the date of issuance to monitor compliance with permit conditions.

C. Tiered Conditions. "Tiered Conditions" as set forth below consist of progressively more stringent regulations on entertainment and related activities in the DDED. By applying for an entertainment permit in the DDED, the applicant must agree to the conditions set forth below and must agree to waive a hearing if these conditions are applied. The City Council may add further conditions not listed here, or revoke the permit, if Permittee does not comply with the conditions imposed in this permit. These conditions do not modify or limit in any way the authority of the Chief of Police to enforce Penal Code Section 415 (disturbing the peace) against any person, or of the Chief of Police or the Fire Marshal to immediately take action in the event of an imminent threat to public health or safety.

1. Tier 1 Conditions:

a. Permittee may have entertainment on the premises during the maximum hours permitted in

the DDED, consistent with the conditions imposed in the entertainment permit, ABC requirements and with conditions imposed under a Conditional Use Permit (if applicable). As long as the primary requirements for safety and noise are met (Conditions 1-29), Permittee may choose the methods of meeting those requirements.

b. Noncompliance with Tier 1 conditions: When the City determines that Permittee has violated the terms of the permit, including Permittee's obligation to comply with all other laws and regulations, he or she may require Permittee to attend a meeting with the involved departments to address community concerns and discuss how the implementation of Tier 2 Conditions can be avoided.

2. Tier 2 Conditions:

a. Noise: Following the receipt of three (3) or more noise complaints that require a response by the Police Department within a 30-day period and which are found to violate the noise standard prohibiting unreasonably loud sound fifty feet (50') from the perimeter of the premises, Permittee will be notified that his or her premises must comply with those Tier 2 Noise Conditions which the City determines are necessary to protect the public peace and to comply with the City's noise ordinance, from among the following list:

(i) Permittee must keep all doors and windows closed except while patrons are entering or exiting;

(ii) Permittees shall submit an acoustical study, performed by a qualified, certified acoustical engineer, hired by the applicant and acceptable to the City. The study shall be reviewed and confirmed by the Health Department and the Development Services Department. Based on the results of the acoustical study, appropriate mitigation measures may be required so that the noise emanating complies with the sound ordinance. Such measures must be completed and approved by the City before outdoor amplified entertainment will be permitted. If the Permittee did not previously perform and submit such an acoustical study and mitigation measures, the Permittee shall do so. Once a Permittee has been notified of Tier 2 status, the Permittee can no longer qualify for a waiver pursuant to Paragraph 13;

(iii) Sound and amplification equipment shall be monitored during business hours to ensure that audible noise remains at acceptable levels in accordance with Long Beach Municipal Code Chapter 8.80;

(iv) No entertainment of any kind will be permitted after 1:00 a.m.;

(v) No outdoor entertainment of any kind (amplified or non-amplified) will be permitted after 10:00 p.m.;

(vi) No queue will be permitted after midnight. Any persons gathering outside the establishment shall be considered to be loitering.

b. Security/Public Safety: For the purposes of this Section, an "incident" means a complaint or occurrence that requires a Police or Fire Marshal response to Permittee's premises due to Permittee's noncompliance with the terms and conditions of the Entertainment Permit. Following three (3) or more incidents within a 30-day period, or a single incident involving violence, the Chief of Police or Fire Marshal may notify Permittee of additional measures and conditions to be implemented. These additional measures will be some or all of the following:

(i) Additional security personnel at hours determined necessary by the Chief of Police to prevent Permittee's operations from creating a public nuisance;

(ii) Additional security checks on incoming patrons;

(iii) No entertainment of any kind will be permitted after 1:00 a.m.;

(iv) No queue after midnight. Any persons gathering outside the establishment shall be considered to be loitering;

(v) Any additional measures deemed necessary by the Chief of Police or the Fire Marshal to protect health and safety;

(vi) Upon the request of a Permittee who has been required to implement Tier 2 conditions, the Chief of Police, in consultation with the Fire Marshal and the Health Department, shall review Per-

mittee's recent compliance history and determine whether some or all conditions can be returned to Tier 1 levels consistent with the protection of public health and safety.

3. Tier 3 Conditions: The failure of a permittee to resolve noise and/or security/public safety issues as directed by the City within a period not to exceed thirty (30) days shall result in the implementation of Tier 3 conditions:

a. Noise:

(i) No outdoor entertainment of any kind will be permitted at any time;

(ii) Only Ambient Music will be permitted at any time OR Amplified Music will only be permitted until 10:00 p.m. any night;

(iii) All noise must be contained within the premises. No noise shall be audible outside the establishment;

(iv) Implement Health Department recommendations to mitigate noise, including pre- and post-implementation monitoring data collected by a certified noise expert approved by the Health Department.

b. Security/Public Safety:

(i) Entertainment must cease not later than 10:00 p.m. on Sunday through Wednesday nights and no later than midnight on Thursday through Saturday nights. The Chief of Police is authorized to make adjustments of up to one (1) hour in these times to protect the public peace;

(ii) Permittee shall limit the queue outside the establishment to no more than twenty (20) people. There shall be no queue within two (2) hours of the lawful closing time. Any persons gathering outside the establishment shall be considered to be loitering;

(iii) Any additional measures determined necessary by the Chief of Police or the Fire Marshal may be imposed to protect health and safety.

If the City determines that Permittee has not modified his or her operations in compliance with Tier 3 conditions and Permittee continues to violate the terms and conditions of the Entertainment Permit, the City shall begin revocation or suspension proceedings. Permittee is entitled to a hearing to contest such revocation or suspension. (ORD-15-0002 § 1, 2015; ORD-08-0039 § 1, 2008: ORD-07-0064 § 1, 2007: ORD-07-0012 § 1, 2007: ORD-07-0001 § 1, 2007: ORD-06-0010 § 1 (part), 2006)

5.72.210 Boundaries of the downtown program.

The downtown program area consists of the area bounded by the north side of Ocean Boulevard, the south side of Third Street, the east side of Pacific and the west side of Long Beach Boulevard, and the areas known as the Pike at Rainbow Harbor and Shoreline Village, as shown on maps on file in the office of the City Clerk. Hotels within the boundaries are excluded from the requirements of the downtown program but continue to be subject to all other provisions of this Chapter and shall continue to operate under the conditions of their previously-issued entertainment permits. (ORD-08-0039 § 1, 2008: ORD-06-0010 § 1 (part), 2006)

5.72.220 Standard conditions.

The City Council shall adopt standard conditions which shall become part of each downtown entertainment permit. These conditions shall be in addition to those set forth in Sections 5.72.110 through 5.72.150 of this Chapter, in any conditional use permit issued by the City, any other requirement of the Municipal Code, or any Department of Alcoholic Beverage Control license. In the event of a conflict between the requirements of the downtown program and the more general provisions of this Chapter, the requirements of the downtown program shall control within the program area. In the event of a conflict between a downtown entertainment permit and a license issued by the department of alcoholic beverage control, the more stringent regulation shall govern. (ORD-08-0039 § 1, 2008: ORD-06-0010 § 1 (part), 2006)

CHAPTER 5.73 SIDEWALK VENDORS

DIVISION I. PURPOSE AND DEFINITIONS

5.73.010 Purpose.

The purpose of this Chapter is to establish a sidewalk vendor regulatory program. The provisions of this Chapter allow the City to encourage entrepreneurship and economic development opportunities to low-income and immigrant communities while protecting the public's health, safety and welfare; the City's natural resources and recreational opportunities; and the natural character of areas zoned as parks. (ORD-24-0002 § 1, 2024)

5.73.020 Definitions.

If a term or phrase is not defined in this Chapter, or elsewhere in this Code, the most common dictionary definition is presumed to be correct. For the purposes of this Chapter, the following terms and phrases shall have the meanings respectively ascribed to them in this Section unless, from the particular context, it clearly appears that some other meaning is intended.

A. "Above ground structure" means any structure permanently affixed to a public sidewalk or other pedestrian path, including, but not limited to, public benches, bicycle racks, fences, fire hydrants, gates, mailboxes, parking meters, sign poles, street lights, traffic signal poles, tree wells, utility boxes, and utility poles.

B. "Beach access point" means those identified in the coastal access inventory prepared and updated pursuant to Section 30531 of the Public Resources Code.

C. "Certified farmers' market" means a location operated in accordance with Chapter 10.5 (commencing with Section 47000) of Division 17 of the California Food and Agricultural Code.

D. "Curb" means the edge where a raised sidewalk or other pedestrian path meets a street or other roadway.

E. "City" means the City of Long Beach.

F. "Food" means a raw, cooked, or processed edible substance, ice, beverage, an ingredient used or intended for use or for sale in whole or in part for human consumption, and chewing gum.

G. "Highway" means a way or place of whatever nature, publicly maintained and open to the use of the public for purposes of vehicular travel. Highway includes street.

H. "Merchandise" means any personal property, other than food, capable of manual delivery, displayed, held, or offered for retail sale by a vendor.

I. "Park" or "area zoned as a park" means any publicly owned natural and open areas for active and passive public use for recreational, cultural and community service activities, including but not limited to, spaces dedicated or designated as parks in Table 35-2 or any successor table or amendments to said table as set forth in Chapter 21.35 of this Code.

J. "Parklet" means a small area open to public use, utilizing one or more on-street parking spaces and may include adjacent public walkways or other right-of-way, that may combine elements including dining, entertainment, seating, planting, landscaping, lighting, shade, bicycle parking, and/or artwork, as permitted pursuant to Chapter 14.15 of this Code.

K. "Parkway" means the area between the sidewalks and the curb of any street, and where there is no sidewalk, that area between the edge of the roadway and the property line adjacent thereto. "Parkway" also includes any area within a roadway which is not open to vehicular travel. "Parkway" does not include street medians.

L. "Pedestrian path" means a path or walkway, including a sidewalk specifically designed for pedestrian travel. It does not include shared-use paths (e.g., paths designated for both bicycle and pedestrian travel).

M. "Person" means a natural person as well as an entity, company, partnership, corporation, association, organization, or any other legal entity or group, and includes the plural as well as the singular number.

N. "Private property" means any real property, parcel of land, or lot that has a separate certificate of title which is in private ownership or the subject of a lease or agreement with a person enabling its use for private purposes and includes any building or structure thereon. "Private property" includes real property owned by City that is leased to a private person.

O. "Residential" means any area zoned as a residential district in Title 21 of this Code.

P. "Sidewalk" means that portion of a highway, other than the roadway, set apart by curbs, barriers, concrete, markings or other delineation for pedestrian travel.

Q. "Sidewalk vending" means selling food or merchandise from a pushcart, stand, display, pedal-driven cart, wagon, showcase, rack, or other nonmotorized conveyance, or from one's person, upon a public sidewalk or other pedestrian path, and all associated activities, including, but not limited to, set up or break down of equipment, and display or exposure of food or merchandise for immediate sale.

R. "Sidewalk vendor" means a person who sells food or merchandise from a pushcart, stand, display, pedal-driven cart, wagon, showcase, rack, or other nonmotorized conveyance, or from one's person, upon a public sidewalk or other pedestrian path.

1. "Roaming sidewalk vendor" means a sidewalk vendor who moves from place to place and stops only to complete a transaction.

2. "Stationary sidewalk vendor"' means a sidewalk vendor who vends from a fixed location.

S. "Swap meet" means a location operated in accordance with Article 6 (commencing with Section 21660) of Chapter 9 of Division 8 of the California Business and Professions Code, and any regulations adopted pursuant to that article.

T. "Temporary special permit" means a permit issued by the City for the temporary use of, or encroachment on, the sidewalk or other public area, including, but not limited to, an encroachment permit, special event permit, or temporary event permit, for purposes including, but not limited to, filming, parades, or outdoor concerts. (ORD-24-0002 § 1, 2024)

DIVISION II. ADMINISTRATION

5.73.030 License and permits required.

A. It is unlawful for any person to engage in, operate, conduct, carry on, or allow to be carried on, or otherwise engage in any sidewalk vending without having first met the following requirements:

1. The person has a valid business license pursuant to Chapter 3.80 of this Code;

2. The person has a valid sidewalk vendor business permit pursuant to the requirements of Title 5 of this Code, including the requirements in this Chapter; and

3. The person has a valid seller's permit applicable to sidewalk vending issued by the California Department of Tax and Fee Administration (CDTFA), to the extent required by law.

B. Additionally, it is unlawful to engage in, operate, conduct, carry on, or allow to be carried on, or otherwise engage in the sidewalk vending of food without also having first obtained a health permit from the City Department of Health and Human Services.

1. Exception: A sidewalk vendor with twenty-five (25) square feet or less of display area from which only prepackaged non-potentially hazardous food and whole uncooked produce is sold is not required to obtain a health permit.

C. Sidewalk vendor business and health permits are non-transferable. Any change in ownership or operation requires new permits. (ORD-24-0002 § 1, 2024)

5.73.040 Sidewalk vendor business license.

Each sidewalk vendor is subject to and must comply with the provisions of Chapter 3.80 of this Code related to the City's business license tax. Notwithstanding the foregoing, every person who applies for a sidewalk vendor business license/permit within the first year of the effective date of this Chapter 5.73 of this Code shall not be subject to the business license tax imposed by Section 3.80.253 of this Code for the first year of the

applicant's operation as a sidewalk vendor. (ORD-24-0002 § 1, 2024)

5.73.050 Sidewalk vendor business permit - application and fees.

A. Each sidewalk vendor is subject to and must comply with Chapter 5.04 of this Code related to the administration of City business permits.

B. An application for a sidewalk vendor business permit shall be filed in compliance with Chapter 5.04 of this Code, using a form approved by the City for that purpose, and which shall be certified by the applicant that to the best of the applicant's knowledge, the information contained on the form is true. Applications shall contain, at a minimum, the following information:

1. Name and current mailing address of the applicant;

2. Description of the merchandise or food offered for sale;

3. CDTFA seller's permit number, to the extent required by law; and

4. If the applicant is an agent of an individual, company, partnership, or corporation, the name and business address of the principal.

C. The applicant for a sidewalk vendor business permit is required to produce a social security number or alternative form of identification. Acceptable alternative forms of identification include a California driver's license or identification number, or an individual taxpayer identification number. The collected identification number shall not be available to the public for inspection, is confidential, and shall not be disclosed except as required to administer the permit and licensure program, to comply with a state law, or to comply with state or federal court order.

D. Payment of the sidewalk vendor business license tax shall satisfy the fee for a sidewalk vendor business permit under Section 5.04.040 of this Code.

A sidewalk vendor business permit shall not be issued for sidewalk vending of food unless the vendor first obtains a valid City-issued health permit. Applicants intending to sell food must produce a valid City-issued health permit upon application for a sidewalk vendor business permit. (ORD-24-0002 § 1, 2024)

5.73.060 Sidewalk vendor business permit - investigation.

Every sidewalk vendor shall be subject to inspections to ensure compliance with this Code and any other applicable law. (ORD-24-0002 § 1, 2024)

5.73.070 Sidewalk vendor business permit - term and renewal.

A sidewalk vendor business permit issued under the provisions of this Chapter shall be effective for a one (1) year period after issuance, and shall be automatically renewed every year upon payment of the required business license tax, provided the Director of Financial Management determines that the permitee has complied with the provisions of this Chapter and all applicable laws during the preceding permit term. (ORD-24-0002 § 1, 2024)

5.73.080 Sidewalk vendor business permit - cancellations, suspensions, revocations, denials, and appeals.

A. The cancellation, suspension, revocation, denial and appeal of a sidewalk vendor business permit shall be governed by the provisions of Chapter 5.06 of this Code.

B. No person shall conduct any sidewalk vending during the pendency of a related business permit application, during the time such a permit has been suspended, or at any time after such a permit has been denied, cancelled, or revoked, unless the permit is later granted or reinstated.

C. In the event the sidewalk vendor license and/or permit is canceled, suspended, denied or revoked, any associated business permit and/or license is simultaneously and automatically deemed canceled, suspended, denied or revoked. (ORD-24-0002 § 1, 2024)

5.73.090 Health permit for sidewalk vending of food.

Each sidewalk vendor vending food must also obtain a City-issued health permit pursuant to

Section 5.04.050 and Title 8 of this Code, and the California Health and Safety Code. Notwithstanding the foregoing, every person who applies for or renews a health permit to operate as a sidewalk vendor of food within the first year of the effective date of this Chapter 5.73 of this Code shall not be subject to any City health permit and/or plan check fee for the first year of the applicant's operation as a sidewalk vendor. (ORD-24-0002 § 1, 2024)

5.73.100 Insurance.

A. Every sidewalk vendor shall, as a condition precedent to the operation of sidewalk vending, obtain insurance as prescribed in regulations issued by the City Manager pursuant to Section 2.84.040. Every sidewalk vendor shall file such insurance with the Director of Financial Management.

B. Every sidewalk vendor shall maintain the insurance in full force and effect when conducting sidewalk vending. Failure to maintain such insurance shall be cause for suspension or revocation of a sidewalk vendor business permit.

C. Prior to the issuance or renewal of a sidewalk vendor business permit, each sidewalk vendor shall execute an indemnity agreement on a form provided by the City which provides that, by the acceptance or use of the sidewalk vendor permit, the sidewalk vendor shall indemnify, defend, protect and hold harmless the City, its Boards, Commissions, and their officials, employees, and agents from and against any and all liability, claims, demands, damage, loss, obligations, causes of action, proceedings, awards, fines, judgments, penalties, costs and expenses, arising or alleged to have arisen, in whole or in part, out of or in connection with the vendor's sidewalk vending (collectively "claims") and that the sidewalk vendor shall notify the City of any claim within ten (10) days.

D. City will comply with the California Values Act, Chapter 17.25 (commencing with Section 7284) of Division 7 of Title 1 of the Government Code, and City of Long Beach Administrative Regulation 33: Procedures Regarding the Requesting, Collecting, and Maintaining of Sensitive Information and the Enforcement of Federal Immigration Law in relation to the collection of information of sidewalk vendors. (ORD-24-0002 § 1, 2024)

DIVISION III. GENERAL OPERATING CONDITIONS AND LOCATIONS

5.73.110 Sidewalk vending - general operating conditions.

A. All sidewalk vendors must comply with all applicable provisions of the Long Beach Municipal Code, including, but not limited to:

1. Chapter 8.63 - Polystyrene Food Packaging;
2. Chapter 8.80 - Noise;
3. Section 16.08.420 - Disposal of refuse;
4. Section 16.12.260 - Sanitation (Pacific Ocean Areas); and
5. Section 16.16.140. - Park Playgrounds - Adults not accompanying children ages 12 and under prohibited.

B. All sidewalk vendors vending food must comply with and are subject to:

1. Title 8 of this Code; and
2. The California Health and Safety Code.

C. Hours of operation. Sidewalk vending may only be conducted during the following hours of operation:

1. Permissible roaming sidewalk vending in residential areas may occur between the hours of 8:00 a.m. and 8:00 p.m., or between 8:00 a.m. and sunset, whichever is later.

2. Permissible sidewalk vending in non-residential areas, excluding areas zoned as parks, may occur between the hours of 6:00 a.m. and 10:00 p.m. or during the operating hours imposed on other businesses on the same block, whichever is least restrictive.

3. Permissible sidewalk vending in areas zoned as parks may occur between the hours of 8:00 a.m. and the closing time of the park or, if there is no designated closing time, at sunset.

4. Notwithstanding the aforementioned operating hours, no sidewalk vendor may vend within

one (1) block of any school grounds from Monday through Friday, between the hours of 7:00 a.m. and 5:00 p.m. of said days.

D. All sidewalk vendors must operate in a space no larger than one hundred (100) square feet.

E. All sidewalk vendors must maintain adequate trash containers in or on their sidewalk vending conveyance or self, such that any trash generated by the sidewalk vending and/or the customers of the sidewalk vendor can be properly collected and disposed of by the sidewalk vendor.

F. All sidewalk vendors must clean up all trash and debris related to their sidewalk vending within a ten (10) foot radius around their vending area. No sidewalk vendor shall use a public trash receptacle to dispose of their trash.

G. All sidewalk vendors shall immediately clean up any food, grease, fluid, or items related to their sidewalk vending that falls onto public or private property.

H. Any set up of tables, chairs, canopies, and/or umbrellas must be for the sole use of the sidewalk vendor. Any umbrella must have a minimum height of eight (8) feet and must be secured. Stationary sidewalk vendors may set up one (1) canopy for the sole use of the sidewalk vendor, not to exceed ten (10) feet by ten (10) feet and must abide by the following: the canopy must be properly secured and must have a cane-detectable barrier between each of the legs of the canopy. If using a canopy, a stationary sidewalk vendor shall maintain a minimum four (4) feet of clear, uncovered sidewalk/pedestrian path width as a path of travel, and five (5) feet in areas identified as High Volume or Very High Volume Pedestrian Zones as designated by the City's Traffic Engineer and Director of Public Works. Sidewalk vendors may not set up tables, chairs, umbrellas or canopies for customer use.

I. All sidewalk vendors must comply with all applicable laws relating to the employment of minors. Any minor assisting with or engaged in sidewalk vending shall be accompanied by a sidewalk vendor with the required valid license and permit(s). Any and all actions of the minor related to sidewalk vending, including any violations committed by the minor, shall be attributable to the sidewalk vendor.

J. All sidewalk vendors must comply with all posted parking restrictions, including when using motorized vehicles to load or unload sidewalk vending conveyances, equipment, materials, or personnel.

K. No sidewalk vendors shall drive onto or otherwise stage any motorized vehicle on any curb, parkway or sidewalk to load or unload sidewalk vending conveyances, equipment, materials or personnel. No sidewalk vendors shall use any motorized vehicle to drive onto sidewalks, pedestrian paths, pathways, turf, or sandy areas.

L. Stationary sidewalk vendors shall not use amplified or non-amplified sound-making devices in conjunction with their sidewalk vending, such as speakers, microphones, public address systems, bells, and chimes.

M. Roaming sidewalk vendors shall not use amplified or non-amplified sound-making devices in conjunction with their sidewalk vending, with the exception of bells and chimes.

N. Sidewalk vendors may not use red and blue flashing signs. Any other flashing sign used in sidewalk vending must not be facing a highway or traffic.

O. Sidewalk vendors may use a private property owner's utilities (e.g., water or power) only if the sidewalk vendor has prior authorization from the private property owner and use of the utilities does not present a safety hazard (e.g., tripping hazard) or accessibility challenge.

P. All sidewalk vendors shall not:

1. Leave their sidewalk vending conveyance, equipment, food, and/or merchandise unattended.

2. Store their sidewalk vending conveyance, equipment, food, and/or merchandise on public property.

3. Rent merchandise to customers.

4. Solicit sales by travelling door-to-door on private property.

5. Hang or affix any items to above ground structures, fences, gates, trees, or onto public or private buildings.

6. Display merchandise or food that is not available for immediate sale.

7. Vend food or merchandise that requires verification of a minimum age for purchase, such as alcoholic beverages (as defined in Section 9.02.020 of this Code), tobacco, tobacco products, cannabis, or firearms.

8. Vend any controlled substance, drug, or pharmaceutical.

9. Vend vaping or drug paraphernalia.

10. Vend adult-oriented material.

11. Vend animals.

12. Vend counterfeit, stolen, or illegal goods.

13. Vend weapons, including but not limited to, knives, guns, explosive devices, BB devices, or imitation firearms.

14. Dispose of items or materials onto or into the curbs, gutters, streets, drains, storm drain system, or onto any other public or private property. Items include, but are not limited to, food debris, hot coals, ashes, grease, and any water or rinse residue used for sidewalk vending, such as cooler water, ice, or food preparation water.

15. Adversely affect the City's ability to perform municipal functions or furnish City services.

16. Interfere with the performance of police, firefighter, lifeguard and/or emergency medical personnel services.

17. Obstruct the free and easy access to and departure from any portion of any public landing, pier or wharf within the marinas. (ORD-24-0002 § 1, 2024)

5.73.120 Sidewalk vending - location requirements.

A. Stationary sidewalk vendors shall maintain a minimum four (4) feet of clear sidewalk/pedestrian path width as a path of travel, and five (5) feet in areas identified as High Volume or Very High Volume Pedestrian Zones as designated by the City's Traffic Engineer and Director of Public Works.

B. Sidewalk vendors shall not vend:

1. On any public property that does not meet the definition of a "sidewalk" or "pedestrian pathway," as defined by this Chapter, unless otherwise authorized by this Chapter.

2. On any private property, unless authorized by the owner of the private property and the vendor has secured an administrative use permit. This includes any City-owned property subject to a lease agreement, including, but not limited to, the Long Beach Convention and Entertainment Center, Shoreline Village, the Pike Outlets, Rainbow Harbor Esplanade, Rancho Los Alamitos, Rancho Los Cerritos, municipal golf courses and community gardens.

3. At a protected habitat or mitigation areas, including but not limited to, Colorado Lagoon, DeForest Park and Wetlands, El Dorado Nature Center, Golden Shore Marine Reserve, Jack Dunster Marine Reserve, Los Cerritos Wetlands, Sims Pond, and Willow Springs Park and Wetlands.

4. On any sidewalk or other pedestrian path with a slope greater than five (5) percent or where signage indicates that wheels must be cramped to the curb.

5. In any location where the sidewalk vending obstructs traffic signals or regulatory signs.

6. To any customer in an unparked vehicle, including a vehicle that is stopped in traffic.

7. On any sidewalk, roadway or adjacent shoulder within five hundred (500) feet of a freeway off ramp or on ramp.

8. Within eighteen (18) inches of the edge of a curb.

9. Within five (5) feet of an above ground structure.

10. Within five (5) feet of a bus stop or Metro stop.

11. Within ten (10) feet of a driveway, alley approach or marked crosswalk.

12. Within ten (10) feet of an ATM or outlined shared e-scooter or bike parking.

13. Within fifteen (15) feet of a commercial outdoor dining area, sidewalk dining area, permanent parklet, or location with a valid encroachment permit.

14. Within fifteen (15) feet of a street intersection.

15. Within fifteen (15) feet of a loading zone, ADA curb/ramp/curb cut, parking space, or access ramp designed for individuals with disabilities.

16. Within twenty-five (25) feet of a beach access point.

17. Within fifty (50) feet of a railroad crossing.

18. Within twenty-five (25) feet of a Los Angeles County waterway and/or flood control fencing.

19. Within one hundred (100) feet of the vehicle entrance of any fire station, police department, hospital, lifeguard tower, lifeguard headquarters, or any other emergency response structure or path.

20. Within one hundred (100) feet of a posted sidewalk or street closure, unless otherwise permitted.

C. Stationary sidewalk vendors shall not vend:

1. In areas zoned as exclusively residential.

2. Within twenty (20) feet of any detached or freestanding single-family home located in a mixed-use zone (i.e., area zoned as both residential and commercial).

3. Within ten (10) feet of an entrance or exit to a building/ structure/facility, fire escape, or emergency exit.

4. Within fifteen (15) feet of a Fire Department connection, fire hydrant, fire lane or any fire backflow preventer.

5. Within twenty (20) feet of another stationary sidewalk vendor.

D. Roaming sidewalk vendors shall not vend:

1. Where they block the entrance or exit to a building/structure/ facility, fire escape, or emergency exit.

2. Where they block a Fire Department connection, fire hydrant, fire lane or any fire backflow preventer.

E. Sidewalk vendors vending food shall not vend within fifteen (15) feet of a public restroom.

F. Sidewalk vendors may vend in a parkway, so long as the vending only occurs on areas where plants are not present, no damage is done to the parkway landscaping, it is safe to vend in the parkway, and all other requirements under this Chapter are met.

G. For permitted swap meets, permitted certified farmers' markets, and areas designated for a temporary special permit (collectively "events"), the following also applies:

1. For events with less than five thousand (5,000) attendees and where limited venue access/ egress is not a factor, sidewalk vendors may not vend within two hundred fifty (250) feet of the event.

2. For events with more than five thousand (5,000) attendees and where limited venue access/ egress is not a factor, sidewalk vendors may not vend within five hundred (500) feet of any entrance or exit to the event or within two hundred fifty (250) feet of the perimeter of the event.

3. For all other events, sidewalk vendors may not vend within five hundred (500) feet of the event.

4. The vending restrictions described above in subparagraphs (1) through (3) to paragraph G of this Section, apply as follows:

a. For permitted swap meets or permitted certified farmers' markets: during the limited operating hours of the certified farmer's market or swap meet.

b. For an area designated for a temporary special permit: during the limited duration of the temporary special use permit.

5. For areas designated for a temporary special permit, any notice, business interruption mitigation, or other right provided to affected businesses or property owners under the City's temporary special permit are also provided to any sidewalk vendors specifically permitted to operate in the area, if applicable.

H. In areas zoned as parks, the following also applies:

1. Stationary sidewalk vendors are not permitted to operate within five hundred (500) feet of any concessionaire that has signed an agreement for concessions with the City that exclusively permits the sale of food or merchandise by the concessionaire.

2. Sidewalk vendors are not permitted to operate within fifteen (15) feet of any City monument, statue, memorial, or art installation.

3. Stationary sidewalk vendors may vend within the space ten (10) feet off of a pedestrian, bike, or shared use path, measured perpendicular to the path, so long as it is safe to do so, customers do not queue on the path, the vendor is not within five hundred (500) feet of a concessionaire that has signed an agreement with the City that exclusively permits the sale of food or merchandise by the concessionaire, and all other requirements under this Chapter are met.

4. Sidewalk vendors shall not use any motorized vehicle to drive onto pathways, turf or sandy areas.

5. Sidewalk vendors shall take appropriate care to not damage turf, irrigation or any other infrastructure while engaging in sidewalk vending.

6. Roaming sidewalk vendors may vend on greenspace or sandy areas, but shall not interfere with any sporting events or the free use of any designated sport play areas or open recreation space and shall not approach spectators who are watching a sporting activity to vend food or merchandise. (ORD-24-0002 § 1, 2024)

5.73.130 Sidewalk vending - exception for minor vendors.

In residential zones only, minors under age of eighteen (18) vending on public sidewalks or other pedestrian paths for a temporary use or selling products for a recognized 501(c)(3) charity for the purpose of fundraising shall be exempt from the requirements of this Chapter. Access and accessibility provisions still apply. (ORD-24-0002 § 1, 2024)

DIVISION IV. ENFORCEMENT AND PENALTIES

5.73.140 Enforcement.

Violations of this Chapter are enforceable using the administrative citation procedures set forth in Chapter 9.65 of this Code. Fines for violations of this Chapter shall be assessed pursuant to Section 5.73.160 below. (ORD-24-0002 § 1, 2024)

5.73.150 Impoundment.

A. Any sidewalk vendor with a valid sidewalk vendor business permit that operates in violation of any provision of this Chapter will first be offered an opportunity to remedy the violation in order to continue vending. If the sidewalk vendor refuses to or cannot come into compliance, an enforcement officer may order the sidewalk vendor to immediately cease and desist any vending and to remove themselves from the vending area. If the sidewalk vendor fails to comply, the sidewalk vendor's equipment, food, and/or merchandise may be impounded or disposed of pursuant to paragraphs B and C of this Section, below.

B. A sidewalk vendor's vending equipment, food and/or merchandise is subject to summary and immediate impoundment if the vendor:

1. is vending prohibited items, as described in Section 5.73.110.N, subparagraphs 7 through 13 of this Code;

2. does not possess a valid sidewalk vendor business permit;

3. leaves sidewalk vending equipment, food, and/or merchandise unattended; or

4. is a permitted sidewalk vendor who cannot or refuses to comply with an enforcement officer's request to come into compliance with the Code, and who refuses to cease vending.

C. Equipment, food and/or merchandise is subject to immediate disposal, rather than impoundment, if the equipment, food and/or merchandise cannot be stored, is perishable, or presents a health or safety concern.

D. For any impoundment under this Section, the person from whom property was taken shall be provided with a receipt and instructions for the retrieval of the property. The receipt and instructions shall either be given to the person from whom the property was taken at the time the property is obtained, or mailed, by first-class mail, to the person from whom the property was taken, if the person provides a valid form of identification which includes the person's contact information.

1. The receipt and instructions shall notify the person from whom the property was taken that

the property must be claimed within ninety (90) calendar days after City takes possession of the property or the property will be disposed.

2. If the owner or person responsible for unattended items cannot be identified, or if a person refuses to provide identification for the issuance of an administrative citation, the enforcement officer shall document the date, time period, and location where the impounded property was observed; the circumstances supporting the enforcement officer's finding that the property was unattended, if applicable; any reasonable attempt to locate the owner of the property; any refusal by the owner of the property to provide identification; and a complete description of the property, including any property that was immediately disposed of because it was perishable or presented a health or safety concern. This document shall be maintained by the City with any impounded property.

3. Impounded property may be recovered within ninety (90) calendar days from the date of impoundment, upon presentation of proof of ownership and full payment of a sum equal to the cost of removing and storing the impounded property.

4. Any unclaimed impounded property will be considered abandoned and forfeited to the City after ninety (90) calendar days following impoundment.

5. A person whose property is impounded pursuant to this Section may request an administrative hearing by submitting a written request for hearing form and returning it to the Department of Financial Management within thirty (30) calendar days of impoundment. The administrative hearing shall be conducted in accordance with Chapter 9.65 of this Code and may be held at the same time as the administrative hearing on any related administrative citation issued under this Chapter. No deposit is required to request a hearing on impounded property under this Section.

6. The City Manager or the Department of Financial Management may develop additional regulations for the storage and release of impounded property.

E. None of the aforementioned impoundment actions in this Section prevents an enforcement officer from issuing an administrative citation to a person reasonably believed to be in violation of any provision of this Chapter. (ORD-24-0002 § 1, 2024)

5.73.160 Penalties.

A sidewalk vendor who violates any provision of this Chapter is subject to the penalties enumerated in paragraphs A and B of this Section below, and not of Section 5.08.030.A of this Code.

A. Violations of this Chapter.

1. Any violation of this Chapter shall be punishable only by the following:

a. An administrative fine not exceeding one hundred dollars ($100) for a first violation.

b. An administrative fine not exceeding two hundred dollars ($200) for a second violation within one (1) year of the first violation.

c. An administrative fine not exceeding five hundred dollars ($500) for each additional violation within one (1) year of the first violation.

d. City may revoke a sidewalk vendor business permit issued to a sidewalk vendor for the term of that permit upon the fourth violation or subsequent violations.

2. The owner, manager, or operator of any sidewalk vending activity is responsible for any violation by an employee of any provision of this Chapter. Any violation of this Chapter by an employee shall be deemed a violation for which the owner, manager or operator of each sidewalk vending activity is responsible.

B. Sidewalk vending without a valid sidewalk vendor business permit.

1. Sidewalk vending without a valid sidewalk vendor business permit shall be punishable by the following:

a. An administrative fine not exceeding two hundred fifty dollars ($250) for a first violation.

b. An administrative fine not exceeding five hundred dollars ($500) for a second violation within one (1) year of the first violation.

c. An administrative fine not exceeding one thousand dollars ($1,000) for each additional violation within one (1) year of the first violation.

2. Upon proof of a valid sidewalk vendor permit issued by the City, the administrative fines set forth in subparagraph (B)(1) shall be reduced to the administrative fines set forth in subparagraph (A)(1) of this Section, respectively.

C. Failure to pay an administrative fine pursuant to this Section shall not be punishable as an infraction or misdemeanor. Additional fines, fees, assessments, or any other financial conditions beyond those authorized in this Section shall not be assessed.

D. Sidewalk vending of food without a valid City health permit shall be punishable pursuant to the California Health and Safety Code.

E. Violations of any rule, regulation, or statute outside of this Chapter may be independently enforced and penalized as prescribed by law. (ORD-24-0002 § 1, 2024)

5.73.170 Ability-to-pay determination.

A. Any fine issued under this Chapter will be accompanied with a notice of the right to request an ability-to-pay determination with instructions or other materials for requesting an ability-to-pay determination.

B. At any time before the citation is paid, the cited party may request an ability-to-pay determination.

C. When assessing an administrative fine pursuant to this Chapter, the adjudicator shall take into consideration the person's ability to pay the fine. The adjudicator shall have the power to reduce the fine based upon the person's ability to pay the fine.

1. If the adjudicator finds the person meets the criteria described in subdivision (a) or (b) of Government Code Section 68632, the City shall accept, in full satisfaction, twenty (20) percent of the administrative fine imposed pursuant to this Chapter.

2. The adjudicator may waive the administrative fine or may offer an alternative disposition. (ORD-24-0002 § 1, 2024)

5.73.180 Severability.

If any provision of this Chapter, or the application thereof to any person or circumstance, is held invalid, that invalidity shall not affect any other provision or application of this Chapter that can be given effect without the invalid provision or application; and to this end, the provisions or applications of this Chapter are severable. (ORD-24-0002 § 1, 2024)

CHAPTER 5.74 RUMMAGE SALES

5.74.010 Definitions.

As used in this Chapter, the term "rummage sale" means the sale of miscellaneous items of new or secondhand merchandise, collected by or through bona fide religious, charitable, political, educational, fraternal and philanthropic organizations or associations, having their headquarters, main office, or a branch in this City, which organizations are not operated for profit, the proceeds of which sale, less reasonable expenses thereof, will be devoted solely to the furtherance of the objectives of such organization or association. (Ord. C-7423 § 27, 1996: Ord. C-6260 § 1 (part), 1986)

5.74.020 Permit required.

No rummage sale shall be conducted for a period in excess of five (5) days, and at least ten (10) days before commencing such rummage sale such organization or association shall obtain from

the Chief of Police a permit to do so. (Ord. C-7423 § 27, 1996: Ord. C-6260 § 1 (part), 1986)

5.74.030 Application contents.

A permit shall be issued upon the applicant's furnishing the following information to the satisfaction of the Chief of Police; otherwise, it shall be denied:

A. Proof of compliance with the provisions of Long Beach Municipal Code Chapter 5.28;

B. Name, address and telephone number of organization or association;

C. Names and addresses of principal officers;

D. Location of premises where the rummage sale is to be conducted;

E. Date of commencement of sale, hours, and proposed duration, not to exceed five (5) days;

F. Name, address and telephone number of person making application on behalf of the organization or association.

G. If the rummage sale is held on property not owned by the applicant/organization, a letter of permission from property owner is required. (Ord. C-7423 § 27, 1996)

CHAPTER 5.75 SOCIAL CLUBS

5.75.010 Definitions.

As used in this Chapter, the following words and phrases shall have the following meaning:

A. "Social club" means any entity organized and maintained for the promotion of literature, science, politics, good fellowship, philanthropy, or for the social or physical welfare, benefit or amusement of the membership and which maintains a clubroom or clubhouse to which the membership may resort for recreation, amusement, or social intercourse and wherein intoxicating beverages are sold, served or consumed, or wherein dancing is carried on, maintained or allowed, or wherein card games and card playing are conducted or played or allowed. A social club may be organized and maintained either for profit or for nonprofit purposes. (Ord. C-7423 § 34, 1996)

5.75.020 Permit required.

No person shall carry on, maintain or conduct a social club in the City without first obtaining a permit from the City Council. (Ord. C-7423 § 34, 1996)

5.75.030 Permit application process.

A. Filing. Any person desiring a permit required by this Chapter shall make application on forms to be provided by the Director of Financial Management. Such application shall include the name and address of the applicant, the proposed location, and such other information deemed pertinent by the Director of Financial Management.

1. The person whose signature appears on the application shall attest that they are a duly authorized representative of the applicant and that the information contained in the application is true and correct.

2. The application shall be filed under penalty of perjury. False statements therein will constitute grounds for denial or revocation as applicable.

3. An incomplete application shall not be accepted for processing.

4. A nonrefundable investigation and notification fee, as set by a City Council resolution, shall be paid to the City at the time the application is filed.

B. Change in Contents. Any change in any information in the application, which occurs after the application has been filed and prior to City Council approval, must be submitted to the Director of Financial Management within ten (10) calendar days after the change has occurred.

C. Investigation. On receipt of the application, the Director of Financial Management shall refer it to all concerned City departments for investigation. Such City departments shall file their reports and recommendations regarding the approval or denial of the permit with the Director of Financial Management within sixty (60) days after the application is filed, except where circumstances beyond the control of the City justifiably delay such response.

D. Hearing.

1. The Director of Financial Management shall transmit the application, together with the reports and recommendations of the City departments, to the City Council for hearing and shall notify the applicant of the time and place of the hearing which shall be held before the City Council on the first available hearing date.

2. Prior to the hearing, the Director of Financial Management shall give the applicant notice of the recommendations of the City departments.

3. Notice of the time and place of the hearing shall also be given:

a. By mail to each owner of property within three hundred feet (300') of the site of the proposed activity;

b. By mail to occupants of property within three hundred feet (300') of the site of the proposed activity; and

c. By posting the property at the site of the proposed activity.

The applicant shall pay all costs of such notice in the manner prescribed by the City's Director of Financial Management.

4. At the hearing, if the City Council determines that the application is complete and truthful; that where the applicant is an entity, it is a bona fide entity, organized and conducted for a lawful purpose; that the applicant, the persons interested in the ownership and the operation of the entity and the officers and trustees of the entity are law abiding persons and persons who will operate and conduct the business or activity in a lawful manner; and that the public peace, welfare and safety will not be impaired, then the application shall be approved. Otherwise, it shall be denied. However, despite City Council approval of the application for the permit, the applicant shall not operate until a permit is actually issued by the Director of Financial Management. Upon approval of the application, the Director of Financial Management shall issue the permit provided that the applicant has met all conditions imposed by any City department, has complied with all applicable laws, and has paid the applicable license tax and permit fees. The applicant shall have a maximum one hundred eighty (180) days after City Council approval to obtain the permit. Failure to do so within that period shall render the City Council approval void, unless an extension of the compliance period is granted by the City Council before the compliance period has expired. (Ord. C-7423 § 34, 1996)

5.75.040 Suspension/Denial/Revocation.

A. Noncompliance. Failure to comply with any of the provisions of this Chapter, including any conditions attached to the permit at the time of approval, will constitute grounds for suspension, denial or revocation of the permit. The suspension or revocation of a permit shall be governed by the provisions of Chapter 5.06 of the Long Beach Municipal Code.

B. Cease Activity. No person shall conduct any business or activity regulated by this Chapter during the pendency of a permit application or subsequent to permit denial or revocation or during the time a permit therefor has been suspended. (Ord. C-7423 § 34, 1996)

5.75.050 Permit nontransferable.

A. Any permit issued pursuant to this Chapter shall not be transferred or assigned to another person for any purpose. Any change in ownership shall require a new permit. Regardless of any change in ownership, the permittee shall be required to notify the Director of Financial Management of any change in the business name. The following shall be deemed a change of ownership:

1. For general partnership personnel, the addition or substitution of a new partner;

2. For a limited partnership, the addition or substitution of a new partner or the addition or substitution of a general partner not listed as a partner in the application for the permit previously approved;

3. For a corporation, more than fifty percent (50%) of the shares of stock is transferred to or acquired by persons other than those designated in the application for the permit previously approved.

B. Any permit issued pursuant to this Chapter shall not be transferred to any other location for any purpose. Any change in location shall require a new permit. The following shall be deemed a change in location:

1. Any relocation or expansion that includes a separate piece of property or parcel of land.

2. Any expansion of the initially permitted premise which represents a greater than fifty percent (50%) increase in the square footage of space devoted to public access or occupancy.

C. The lawful conduct of activity regulated by this Chapter by a permittee shall be limited to those activities expressly indicated on the permit application and approved by the City Council. Any change in activity which exceeds the parameters of the approved permit will require the approval of the City Council or, on a limited basis, the approval of a special permit, pursuant to the provisions of Chapters 5.28 or 5.72 of the Long Beach Municipal Code. (Ord. C-7423 § 34, 1996)

5.75.060 Permit reapplication.

A. Whenever a permit has been revoked or an application for a permit has been denied, no other similar application shall be considered for a period of one (1) year from the date of such revocation or denial.

This applies to any person whose permit was revoked or whose application was denied who later becomes a director or officer of a corporation, profit or nonprofit, or a member of a partnership or a person owning or possessing fifty percent (50%) or more of the shares of a corporation. This shall also apply to a corporation, profit or nonprofit, whose permit was revoked or application denied, to any of its directors or officers or to any person who owned fifty percent (50%) or more of its shares, who attempts by way of a new corporation or by the use of their individual names or becoming a member of a partnership or a director or officer or a person owning or possessing fifty percent (50%) or more of the shares in another corporation to obtain a new permit. Whenever any permit is suspended, the provisions of this Section shall apply to the permittee during the period of suspension. (Ord. C-7423 § 34, 1996)

5.75.070 Conditions of operation.

A. Membership in a social club shall be granted and membership registration shall be maintained as follows:

1. Where applicable, an application for membership shall be in writing, and each permittee shall establish a membership committee which shall review and act upon each application. An appropriate identification card shall be issued to each person approved for membership. The term "member" includes a dues-paying member, honorary member, associate member, lifetime member, or any other person granted a membership in the licensed entity. The term "registered member" is any person who pays dues, any other remuneration, or is otherwise a member in good standing.

2. No person shall be admitted to membership or granted temporary, provisional or limited membership rights within twenty-four (24) hours after his/her application is submitted.

3. Every social club shall keep on its premises at all times a membership book or register which shall contain a complete and current roster of the entire membership. It shall list the name, address, and type of membership of each member.

4. No person shall apply for membership under any false or fictitious name or any name and address other than the true name and address of such person. False information in the membership book or register may constitute grounds for revocation or suspension of the permit.

5. It shall be the duty of every permittee and of every employee, manager, agent or officer of such permittee to display and exhibit such membership book or any other document or record relevant to this Section to any Police Officer or other authorized public employee in the pursuit of his/her official duties on the demand, oral or written, of such Police Officer or public employee.

B. No card games or card playing is allowed where there is an exchange of money or anything else of value or anything which represents anything of value. Card games or card playing shall be allowed only for the purpose of entertainment and

amusement. The definition of amusement for the purposes of this Section shall mean any game or contest between two (2) or more persons which is either skill or chance and which is played solely for the purpose of enjoyment and not for any consideration, monetary or otherwise. (Ord. C-7423 § 34, 1996)

CHAPTER 5.76 DISCOUNT COUPON BOOK AND MEMBERSHIP SALES

5.76.010 Definition.

As used in this Chapter, "Discount Coupon Book and Membership Sales" means the selling or offering for sale of coupon books or club memberships whereby the purchaser of such membership or books is to be allowed a discount from any person who offers goods or services at a discount, or free, or partially free, as an inducement or reward for the purchase of such coupon book or club membership. (Ord. C-7423 § 28, 1996: Ord. C-6325 § 28 (part), 1986)

5.76.020 Permit required.

No person shall practice, engage in or carry on the business of coupon discount book and membership sales in the City without first having obtained a permit to do so and complying with all regulations and requirements contained and set forth in this Chapter. (Ord. C-7423 § 28, 1996: Ord. C-6325 § 28 (part), 1986)

5.76.025 Exemptions.

A. A charitable group or other nonprofit organization which has a tax exempt status as determined by the IRS and Franchise Tax Board shall be exempt from the permit regulation if able to demonstrate compliance with or exemption from the Charitable Solicitation permit requirements as stated in Chapter 5.28 of the Long Beach Municipal Code.

The provisions of this Chapter shall not apply to retail establishments having a fixed location within the City. (Ord. C-7423 § 28, 1996)

5.76.030 Permit—Application.

Each person, before obtaining a permit to carry on the business of Discount Coupon Book and Membership Sales, shall make a written application upon forms furnished by the Director of Financial Management. The application shall be signed by the applicant. Each applicant shall be fingerprinted and photographed by the Police Department for the purpose of a background investigation. (Ord. C-7423 § 28, 1996: Ord. C-6325 § 28 (part), 1986)

5.76.040 Grounds for denial.

An application for a permit under this Chapter shall be denied if:

A. The applicant has knowingly made any false, misleading or fraudulent statement of material fact in the application for the permit required under the provisions of this Chapter; or

B. The applicant has violated any provisions of this Code, State or Federal law arising out of and in connection with the practice and/or operation of the business for which the permit is sought. (Ord. C-7423 § 28, 1996: Ord. C-6325 § 28 (part), 1986)

5.76.050 Permit fee.

Every applicant shall pay a nonrefundable fee established by resolution of the City Council adopted pursuant to Section 5.04.040. (Ord. C-7423 § 28, 1996: Ord. C-6325 § 28 (part), 1986)

CHAPTER 5.77 SHORT-TERM RENTALS*

5.77.010 Purpose.

The purpose of this Chapter is to establish regulations, standards, and a registration process governing the renting or leasing of privately owned visitor serving residential dwelling units on a short-term basis in order to maintain the long-term rental housing stock in the City; ensure the collec-

*Editor's note—ORD-25-0001, § 1, adopted Feb. 11, 2025, amended Ch. 5.77 in its entirety to read as herein set out. Former Ch. 5.77, §§ 5.77.010—5.77.130, pertained to similar subject matter, and derived from: ORD-22-0011 § 1, 2022; ORD-20-0045(Emerg.) § 1, 2020; and ORD-20-0024 § 1, 2020.

tion and payment of Transient Occupancy Taxes ("TOT"); safeguard the residents of the City of Long Beach by ensuring that short-term rental activities do not threaten the character of residential neighborhoods; and ensuring that such short-term rental activities do not become a nuisance, or threaten the public health, safety or welfare of neighboring properties.

The City of Long Beach acknowledges that all persons within its jurisdiction are free and equal, and no matter what their sex, race, color, religion, ancestry, national origin, disability, medical condition, genetic information, marital status, sexual orientation, citizenship, primary language, or immigration status are entitled to the full and equal accommodations, advantages, facilities, privileges, or services in all business establishments, including short-term rentals.
(ORD-25-0001 § 1, 2025)

5.77.020 Definitions.

A. "Booking transaction" means any reservation and/or payment service provided by a person or entity who facilitates a short-term rental transaction between a prospective guest and a short-term rental operator.

B. "City" means City of Long Beach.

C. "Director" shall mean the Director of Community Development, or a person designated by the Director to act in her/his stead.

D. "Emergency contact person" means the person designated by the operator to respond to and take remedial action regarding STR complaints.

E. "Guest" means any person or persons renting a short-term rental for overnight transient occupancy.

F. "Host" means the natural person or persons, at least one (1) of whom is an occupier of the property, who is/are the owner of record of the property or operates the property, including, but not limited to, a personal or family trust consisting solely of natural persons and the trustees of such trust or a limited liability company and the members of such company, or who is/are an authorized tenant of the property.

G. "Hosted stay" means a short-term rental activity whereby the host remains on-site and resides in a habitable dwelling unit or portion thereof throughout the guest's stay (except during daytime and/or work hours).

H. "Hosting platform" means a person or entity that participates in the short-term rental business by collecting or receiving a fee, directly or indirectly through an agent or intermediary, for conducting a short-term rental booking transaction using any medium of facilitation.

I. "Non-primary residence STR" means a short-term rental that is not a primary residence.

J. "Platform agreement" means a signed agreement between a hosting platform and the City, which, among other things, provides that the hosting platform will collect and submit transient occupancy tax to the City on behalf of short-term rental operators.

K. "Primary residence" means a person's permanent residence or usual place of return for housing as documented by at least two (2) of the following: current motor vehicle registration; current driver's license; current voter registration; most recent tax documents showing the residential unit as the person's residence; or the most recent utility bill within the last three (3) months. A person may have only one (1) primary residence and must reside there for a minimum of two hundred seventy-five (275) days during the calendar year. For properties with two (2) or more existing legally permitted dwelling units (e.g., a duplex), the term "primary residence" shall refer to the parcel of land and all units on that parcel or within a building in a residential development project.

L. "Primary residence STR" means a primary residence being operated as a short-term rental.

M. "Prohibited buildings list" means a list identifying the address(es) of all buildings whose owner(s), including any applicable homeowners' association or board of directors, have notified the City, pursuant to City procedures, that short-term rentals are not permitted to operate anywhere in such building, including deed restricted affordable housing units. Prohibited buildings list shall also

include a list of census tract block groups where un-hosted short-term rentals are prohibited per Section 5.77.080. In the Coastal Zone, the provisions of the prohibited buildings list shall apply only to buildings with restrictive covenants or homeowners' associations covenants, conditions, and restrictions (CC&Rs) that are not discriminatory (as defined in Government Code 12955) with explicit restrictions on short-term rentals or their equivalent recorded prior to the Coastal Act (January 1, 1977). Restrictive covenants or CC&Rs proposed subsequent to the effective date of the Coastal Act (January 1, 1977) that restrict short-term rentals in the Coastal Zone shall require a Local Coastal Development Permit (LCDP) under the certified provisions of Division IX of Section 21.25 (Specific Procedures) of the Municipal Code to authorize the restriction for specific buildings. If such a LCDP is approved, the City shall comply with Section 5.77.050.O of these regulations.

N. "Residential development project" means a multi-family development (two (2) or more units) with one (1) or more buildings on one (1) or more parcels of land.

O. "Short-term rental" or "STR" means a residential dwelling unit, or portion thereof, that is offered or provided to a paying guest(s) for occupancy by a short-term rental operator for the use or possession, or the right to the use or possession, for overnight lodging, dwelling, or sleeping purposes for one (1) to thirty (30) consecutive nights. This term shall not include hotels, motels, inns, or bed and breakfast inns, or hourly rentals.

P. "Short-term rental advertisement" means any method of soliciting use of a dwelling unit for short-term rental purposes.

Q. "Short-term rental operator" or "operator" means any person who is the owner or tenant of a dwelling unit, or portion thereof, who offers or provides that dwelling unit, or portion thereof, for short-term rental use.

R. "Single room occupancy" is as defined in Section 21.15.2667.

S. "Special group residence" is as defined in Sections 21.15.2810 and 21.52.271.

T. "Tenant" means a person who has a rental agreement for a dwelling unit in which the rental payments are paid on a monthly or other periodic basis in exchange for occupancy of the dwelling unit.

U. "Transient occupancy tax" or "TOT" means local transient occupancy tax as set forth in Chapter 3.64.

V. "Un-hosted stay" means a short-term rental activity whereby the host, as that term is defined herein, resides off-site during the guest's stay.
(ORD-25-0001 § 1, 2025)

5.77.030 Registration required.

A. No person or entity shall advertise, rent, or operate a short-term rental in the City unless a short-term rental (STR) registration has been issued by the City pursuant to this Chapter. An operator of the STR shall register with the City and shall be responsible for all requirements of this Chapter. Application for a STR shall be in a form prescribed by the Director with all information determined by the Director to be necessary to evaluate the eligibility of the operator, consistent with this Chapter.

B. Eligibility requirements. The following requirements must be met at the time of submitting a STR registration application:

1. The dwelling unit shall not be an accessory dwelling unit, a junior accessory dwelling unit, a deed restricted affordable housing unit, in a special group residence, a single room occupancy, or included on the prohibited buildings list.

2. The STR operator shall not operate more than one (1) primary residence STR and more than one (1) non-primary residence STR in the City.

3. The number of STRs in residential development projects shall not exceed the number of dwelling units identified in the Table below:

Number of dwelling units in a residential development project	Number of STRs allowed per residential development project
2 to 10	1
11 to 50	10%
51 to 100	12%
101 or more	15%

4. The total number of non-primary residence STR registrations allocated shall not exceed eight hundred (800) dwelling units, unless otherwise directed by the City Council by ordinance or resolution. In the coastal zone, the maximum number of non-primary dwelling units registered as STRs is three hundred fifty (350). The Citywide cap on STRs shall not be applied to prohibit additional STRs in the coastal zone until the three hundred fifty (350) STR units in the coastal zone are exhausted. The total number of non-primary residence STR registrations allocated shall be reviewed by the City Council on an annual basis.

5. The STR operator shall identify, to the satisfaction of the City, an emergency contact person who shall be available twenty-four (24) hours per day, seven (7) days a week for: (1) responding within one (1) hour to complaints forwarded from the City or its agent regarding the condition, operation, or conduct of the STR or its guests; and (2) taking any remedial action necessary to resolve such complaints.

6. A signed and notarized property owner consent form shall be provided if the STR operator is not the property owner. A property manager may submit this form on behalf of the property owner with a fully executed and current property management agreement.

7. The dwelling unit or property shall not be the subject of any active or pending code enforcement actions or violations pursuant to the City's Municipal Code.

8. No STR registration for the dwelling unit has been revoked or disallowed within the last twelve (12) months.

9. If the dwelling unit is subject to the rules of a homeowners' or condominium association or non-discriminatory restrictive covenant that restricts STRs or their equivalent, allowance to engage in short-term rental activity through this Chapter shall not be inferred to grant any permission that invalidates or supersedes any provisions in those documents. In the Coastal zone, this provision only applies to the rules of a homeowners' or condominium association or non-discriminatory restrictive covenant recorded prior to the Coastal Act (January 1, 1977).

10. The operator shall sign an indemnification and hold harmless agreement in a form approved by the City Attorney, agreeing to indemnify, save, protect, hold harmless, and defend the City of Long Beach, the City Council of the City of Long Beach, individually and collectively, and the City of Long Beach representatives, officers, officials, employees, agents, and volunteers from any and all claims, demands, damages, fines, obligations, suits, judgments, penalties, causes of action, losses, liabilities, or costs at any time received, incurred, or accrued as a result of, or arising out of the operator's actions or inaction in the operation, occupancy, use, and/or maintenance of the short-term rental.

11. The unit shall be legally permitted as a dwelling unit.

12. The STR operator shall state whether the STR has Americans with Disabilities Act (ADA)-accessible features.

13. After the submission of an application, the property shall receive an inspection to determine the presence of any hazardous or unsafe conditions and document the areas that will be advertised for STR occupancy by guests. If the City determines corrective action is needed as a result of the inspection, the owner shall resolve these issues prior to the issuance of a STR registration.

14. After the approval of a STR registration, City Councilmembers' offices in that district shall be notified by the Director or their designee.

15. There shall be no outstanding code enforcement citation fees owed against the property.

16. If the STR operator fails to obtain within forty-five (45) days after the application has been reviewed by the City, such application shall become invalid and no registration shall be issued unless a new application is submitted and a new fee paid.

(ORD-25-0001 § 1, 2025)

5.77.040 Expiration and renewal.

A. A STR registration is valid for one (1) year from the date of issuance. It may not be transferred or assigned and does not run with the land.

A STR registration may be renewed annually if the operator: (1) pays the renewal fee; (2) provides information concerning any changes to the previous application for, or renewal of, the STR registration; (3) submits records described in Section 3.64.080 for the last year to demonstrate compliance with this Chapter; (4) provides updated written documentation as applicable; and (5) is not the subject of any active or pending criminal or civil investigations, or actions involving violence pursuant to the City's Municipal Code and/or the California Penal Code.

B. Upon review of a STR renewal application, the City may require a re-inspection of the property as a condition of STR renewal registration approval.

C. In order for a STR registration to be eligible for renewal, the dwelling unit or property owner and/or operator shall not be the subject of any active or pending code enforcement actions or violations, criminal or civil investigations, or actions involving violence pursuant to the City's Municipal Code and/or the California Penal Code.

D. A STR registration shall not be renewed if the STR owner or operator has accumulated three (3) or more citations during any contiguous eighteen (18) month timeframe.

E. Should the number of non-primary residence STR registrations reach the amount listed in Section 5.77.030(B)(4), failure to submit a renewal application to the City at least thirty (30) days prior to the expiration of the registration shall render the registration and permission to operate a STR null and void at the expiration of the registration.

F. If the STR operator fails to obtain approval within forty-five (45) days after the renewal application has been reviewed by the City, such renewal application shall become invalid and no registration shall be issued unless a new application is submitted and a new fee paid.

G. A STR registration shall not be renewed if there are outside code enforcement citation fees owed against the property.

(ORD-25-0001 § 1, 2025)

5.77.050 Short-term rental regulations.

A. All marketing and advertising of a STR, including any listing on a hosting platform, shall clearly list the City-issued STR registration number and expiration date.

B. Short-term rental is prohibited in any part of the property not approved and permitted for residential use/habitable space including, but not limited to, a vehicle parked on the property, a recreation vehicle, pool house, rumpus room, casita, a storage room/shed, trailer, garage, boat or similar watercraft, tree house, or any temporary structure, including, but not limited to, a tent. Accessory dwelling units (ADU) and junior accessory dwelling units (JADU) are approved for residential use but are prohibited from use as a STR.

C. Un-hosted stays in a primary residence STR shall be limited to a maximum of ninety (90) days per the annual term of registration.

D. Un-hosted stays shall be prohibited in census tract block groups in the City where such stays are prohibited in accordance with Section 5.77.080 or any successor Section.

E. Each STR shall have a notice posted within the unit in a location clearly marked and accessible to the guest (e.g., posted on the refrigerator, included within a binder with additional information on the unit, etc.), containing the following information:

1. The maximum number of occupants permitted in the unit;

2. Parking capacity, location of parking spaces, and parking rules, if any;

3. Trash and recycling pickup information;

4. The name of the emergency contact person and a telephone number at which that person may be reached on a twenty-four (24) hour basis;

5. Emergency contact information for summoning police, fire, or emergency medical services; and

6. Evacuation plan for the unit showing emergency exit routes, exits, and fire extinguisher locations.

F. The maximum number of persons who may be present on the STR property at one (1) time shall be limited to two (2) persons per bed-

room, plus two (2) up to an absolute maximum of eight (8). This calculation shall be inclusive of children. A studio unit shall be considered to have no bedrooms and a maximum occupancy of two (2). Lofts that meet California Building Code egress requirements are considered a bedroom for the purposes of this occupancy calculation. At no time during a short-term rental stay may the maximum occupancy exceed eight (8) persons in any STR. Large-scale events (i.e., exceeding maximum allowed occupancy) such as commercial parties, weddings, fundraisers, and conferences, are prohibited as part of the short-term rental use, unless a STR occasional event permit has been issued. The maximum number of occasional event permits that can be issued during the annual term of registration per STR is four (4), and any application for an occasional event permit thereafter and within the same registration term shall automatically be deemed null and void by the City.

G. Use of all outdoor pools, spas and hot tubs shall be prohibited between the hours of 10:00 p.m. and 7:00 a.m.

H. All activities shall comply with all provisions of the Municipal Code, including, but not limited to Chapter 9.31 (Loud Parties on Private Property) and Chapter 8.60 (Solid Waste, Recycling and Litter Prevention).

I. No STR shall be used for filming or special events unless the STR operator possesses a valid STR registration, in addition to a Special Events Permit, as applicable.

J. No registered STR operator shall offer or provide hourly rentals to a paying guest at the residence, property, or any other portion thereof where the unit is registered.

K. No sign shall be posted on the exterior of the STR premises to advertise the availability of the STR rental unit to the public.

L. No person shall offer, advertise, book, facilitate, or engage in short-term rental activity in a manner that does not comply with this Chapter.

M. The STR operator shall not knowingly book, transfer, or facilitate the booking to any person banned or removed from any STR in the previous five (5) years.

N. No STR advertisement shall offer a unit, bedroom, or any other area not documented during an inspection(s) described in Section 5.77.030(B)(13) or Section 5.77.040(B), whichever is more recent.

O. Short-term rentals shall comply with all applicable laws and regulations of the City including those pertaining to health, safety, building, and fire protection.

P. The STR operator shall pay all applicable fees and charges set by the City Council by resolution as may be necessary to effectuate the purpose of this Chapter.

Q. It is unlawful for any STR host, operator, occupant, renter, lessee, person present upon, or person having charge or possession of the STR premises, to make or continue to cause to be made or continued any loud, unnecessary or unusual noise which disturbs the peace and quiet of any neighborhood, or which causes discomfort or annoyance to any reasonable person of normal sensitivities residing in the area, or which violates any provision of Chapter 8.80 ("Noise") of this Code.

R. The appearance of the STR premises shall not conflict with the residential character of the neighborhood. All applicable development, design, and landscaping standards, including, but not limited to, those contained in Title 21 of this Code, are expressly made applicable to any premises used for STR purposes.

S. In the coastal zone, upon City or Coastal Commission approval of the first Coastal Development Permit that restricts STRs in the coastal zone, which shall include the required findings in Division IX of Section 21.25 (Specific Procedures) of the Municipal Code for LCDPs related to short-term rentals, the City shall prepare and submit to the Coastal Commission, within one (1) year of the final action on the LCDP, a report that evaluates the required findings for LCDPs that restrict STRs (Section 21.25.904 of the certified Zoning Code) and the cumulative impacts of such restrictions on coastal resources, including but not limited to public access and recreation. After the first report, new reports shall be submitted to the Commission every five (5) years from the date of the

first submittal. If the City or the Commission's Executive Director identifies adverse impacts to coastal resources or inconsistencies with the City's certified LCP resulting from restrictions on STRs in the coastal zone, then the City shall submit within one (1) year a Local Coastal Program Amendment (LCPA) request to the California Coastal Commission that addresses any identified adverse impacts to coastal resources by amending the LCP to mitigate for any adverse impacts identified and modify the certified short-term rental regulations to avoid such impacts in the future.
(ORD-25-0001 § 1, 2025)

5.77.060 Short-term rental operator requirements.

A. The operator shall provide information on the maximum allowed number of occupants, parking capacity and location of parking spaces, noise regulations, and trash and recycling disposal requirements to prospective guests, prior to their occupancy of the unit.

B. Any issues raised by the City to the STR operator must be resolved within the timeframe set by the City when notified by a Notice of Violation or citation issued, and failure to do so may result in penalties, fines, and/or fees.

C. The operator shall provide and maintain working fire extinguishers, smoke detectors, and carbon monoxide detectors, in compliance with life, fire, and safety codes; and information related to emergency exit routes on the property, emergency contact, and emergency response contact information.

D. The operator shall maintain and provide proof of liability insurance appropriate to cover the short-term rental use in the aggregate of not less than One Million Dollars ($1,000,000); or conduct each short-term rental transaction through a platform that provides equal or greater insurance coverage.

E. Transient Occupancy Taxes shall be collected on all Short-Term Rentals. If a Hosting Platform does not collect payment for the rental, operators are solely responsible for the collection of all applicable TOT and remittance of the collected tax to the City in accordance with Chapter 3.64 (Transient Occupancy Tax). If a Hosting Platform does collect payment for the rentals, then it and the operator shall both have legal responsibility for the collection and remittance of the TOT.

F. The operator and property owner shall be jointly responsible for any nuisance violations arising at a property during short-term rental activities.

G. The operator shall authorize any hosting platform on which his or her STR(s) is listed to provide to the City the operator listing and other information to demonstrate compliance with all provisions of this Chapter.

H. The operator must consent to receive all City notices and fines regarding STR registration by U.S. mail.
(ORD-26-0004 § 1, 2026; ORD-25-0001 § 1, 2025)

5.77.070 Hosting platform responsibilities.

A. Hosting platforms shall not process or complete any booking transaction for any STR if notified by the City that a valid current STR registration number has not been issued by the City to the operator. Hosting platforms are required to list the STR registration number and expiration date. Hosting platforms shall not process or complete any booking transaction for any property located in the City that would exceed the limit of days as set forth in Section 5.77.050(C).

B. Within forty-five (45) days of the effective date of this Ordinance, hosting platforms with listings located in the City shall provide to the City contact information for an employee or representative of the hosting platform that will be responsible for responding to requests for information from the City, including requests related to possible violations of this Chapter.

C. Subject to applicable laws, a hosting platform with listings located in the City shall provide to the City on a monthly basis, in a format specified by the City, the STR registration number of each listing, the name of the person responsible for each listing, the address of each such listing,

and, for each booking that occurs within the reporting period, the number of days booked, and the total price paid for each rental.

D. In the event a hosting platform has entered into a platform agreement, and an operator has assigned the responsibilities for the collection and remittance of transient occupancy tax to the hosting platform, then the hosting platform and the operator shall have the same duties and liabilities, including but not limited to the collection and remittance of transient occupancy tax to the City in compliance with this Chapter and Chapter 3.64 (Transient Occupancy Tax) of this Code.

E. The provisions of this Section shall be interpreted in accordance with otherwise applicable State and Federal law(s) and will not apply if determined by the City to be in violation of, or preempted by, any such law(s).

F. Hosting platforms shall remove any listings for STRs, including those on the City's prohibited buildings list, from the platform upon notification by the City. The City Manager shall develop, by administrative regulation, processes and procedures for the removal of any listing.

G. Hosting platforms shall inform all operators who use the platform of the operator's responsibility to collect and remit all applicable local, state, and federal taxes, unless the platform has a platform agreement.

H. It is unlawful to be a hosting platform operating in the City unless the responsibilities in this Section are fully complied with.
(ORD-25-0001 § 1, 2025)

5.77.080 Request to Petition to restrict un-hosted short-term rentals within a geographical census tract block group.

A. The property owners of residential property in any census tract block group within the City may request the City to initiate a petition process, using a form provided by the Director, to prohibit un-hosted STRs within that census tract block group.

Exception. In the Coastal Zone, the petition process shall follow the procedures below and requires a Coastal Development Permit under the certified provisions of Division IX of Section 21.25 (Specific Procedures) of the Municipal Code to authorize the restriction pursuant to Section 5.77.080(D).

B. A successful petition must include the signatures, printed names, and addresses of a majority of the property owners of residential real property that received petition forms located within the boundaries of the census tract block group. The petition process shall in all cases be initiated within one hundred and eighty (180) days after the effective date of this Chapter, and a new one hundred and eighty (180) day petition process period shall be established annually thereafter from January 1 through June 30. The petitioning process will be completed by the City via U.S. mail, and the requestor(s) shall be responsible for the cost of initiating and completing the petition process, which cost will be established by the City Council by resolution. All petition signatures shall be collected by the City, and shall include the street address of each signer, and shall indicate and set forth the positive desire of all those signing the petition to prohibit un-hosted stays within the boundaries of the census tract block group. Each census tract block group shall be limited to the submission of one (1) request to initiate a petition process during any one hundred eighty (180)-day petition process period, on a first come, first served basis. Any second or subsequent petition request for the same census tract block group during the annual one hundred eighty (180)-day petition process period shall automatically be deemed null and void by the City without opportunity for an administrative appeal.

C. For undelivered petitions, the City shall date stamp all undelivered petition documents returned to the City by the U.S. Post Office on the day received by the City. Undelivered petition documents with a City date stamp of five (5) or more days prior to the postmark date indicated on the petition form, inclusive of the postmark date, and with a forwarding address for the owner provided by the U.S. Post Office, shall be re-mailed to the

forwarding address provided via regular mail and shall include copies of all originally mailed petition documents.

D. To the extent a petition seeks to prohibit un-hosted STRs within the Coastal Zone boundaries of the City, and the petition process is successful, it shall have no effect on properties within the Coastal Zone boundaries until the California Coastal Commission or City approves a Coastal Development Permit in conformance with the required findings of the Coastal Act. Any petition to restrict un-hosted short-term rentals shall adhere to the certified provisions of Division IX of Section 21.25 (Specific Procedures) of the Municipal Code for procedures for LCDPs related to short-term rentals. A LCDP approving a petition to prohibit un-hosted STRs in a census tract block group shall remain in effect subject to the expiration time limit established under the approved LCDP.

E. For purposes of the petition, each residential property within the census tract block group shall be represented by the signature of at least one (1) property owner and multiple signatures for the same property shall count as one (1) signature.

F. The Director shall develop, and make publicly available, the process for conducting petitions in accordance with this Chapter.

G. Following approval of an un-hosted restriction by the Director, the City shall provide notice of the restriction to all residential property owners within the boundaries of the affected census tract block group.

H. Once approved, a restriction on un-hosted STRs shall remain in effect for a minimum of three (3) years following the effective date of such restriction. After the initial three (3) year restriction period, the restriction shall remain in effect indefinitely unless and until such restriction(s) are prohibited by law; or a request to initiate a petition to eliminate the restriction is filed with the City and a majority of the property owners within the restricted census tract block group sign the petition reflecting the positive desire of all those signing the petition to remove the restriction on un-hosted stays.

I. The Department of Community Development shall cause to be posted online a list or map of the current census block groups where un-hosted STRs are prohibited.

J. Any fees associated with the filing of the petition, or the removal of a restriction once adopted, shall be established by the City Council by resolution.

K. Upon the filing of a petition in a census tract block group, the City Councilmember's office in that district must be notified of all petitions that have been circulated in their respective district.

(ORD-26-0004 § 2, 2026; ORD-25-0001 § 1, 2025)

5.77.090 Enforcement.

A. It is unlawful to violate the provisions of this Chapter. Violations include, but are not limited to:

1. Failure of the emergency contact to acknowledge and take any remedial action needed to respond to a complaint forwarded by the City or its agent within one (1) hour after the complaint is received or a contact is attempted and the emergency contact cannot be reached;

2. Failure to promptly notify the City when the emergency contact information changes;

3. Violation of the STR maximum occupancy, noise, or other requirements as set forth in this Chapter;

4. Providing false or misleading information on a STR registration application or other documentation required by this Chapter;

5. Any attempt to rent an unregistered STR by advertising the property for short-term rental purposes;

6. Completing a STR booking transaction in the City without a valid City-issued STR registration number;

7. Completing a booking transaction where the STR registration has been revoked or suspended by the City;

8. Violations of state, county, or City health, building, or fire regulations;

9. Exceeding the maximum short-term rental limit of ninety (90) days of un-hosted stays per the annual term of a primary residence registration; and

10. Conduct or activities that constitute a public nuisance as determined by the City or which otherwise constitute a hazard to public peace, health, or safety.

B. Violations of this Chapter may not need a cure period and will result in an immediate citation issued to the STR owner or operator, upon City's verification of the violation.

C. Any and all violations involving violence on the STR property or by STR guests shall receive an immediate citation and shall count as double towards the three (3) citations for non-renewal of the STR registration.

D. Any and all violations of Chapter 5.77 of the Long Beach Municipal Code, or the California Penal Code, shall count as violations toward the three (3) citations required for non-renewal of the STR registration.

E. The Director shall have the ability to cancel or suspend a STR registration if the STR owner or operator fails to timely respond to or remedy an incident involving violence on the STR property or by STR guests.

F. Unless otherwise described in this Section, enforcement of this Chapter shall be subject to the processes and procedures in Chapter 1.32 of the Municipal Code.

G. Notwithstanding anything to the contrary in Chapter 1.32, the fine shall be one thousand dollars ($1,000) for each violation. A STR owner or operator may receive multiple citations for a single event, if it violates multiple provisions of the Municipal Code and/or California Penal Code, or if the violations continue for multiple days without successful resolution.

H. If three (3) citations have been issued against a STR property, registered or unregistered, within an eighteen (18) month period, the STR registration may be revoked, suspended, disallowed, or additional conditions may be imposed by the Director by providing written notice to the STR property owner setting forth the basis of the intended action and giving the owner an opportunity, within fourteen (14) calendar days, to present responding information to the Director. After the fourteen (14) day period, the Director shall determine whether to revoke the registration, suspend the registration, disallow the registration, or impose additional conditions upon the registration and thereafter give written notice of the decision to the owner. If a STR registration is revoked or disallowed, no dwelling unit on that parcel may be registered with the City for a minimum period of twelve (12) months, regardless of who is the STR operator, and may only be registered thereafter upon request and review by the Director or their designee.

I. The City hereby finds and declares that repeated violations of this Chapter constitute a public nuisance which may be enjoined under all applicable laws including Code of Civil Procedure Section 731.

J. Any person, hosting platform, or STR owner or operator convicted of violating any provision of this Chapter in a criminal case or found to be in violation of this Chapter in a civil or administrative action brought by the City shall be ordered to reimburse the City its full investigative and enforcement costs, pay back all unpaid TOT if applicable, and remit all illegally obtained rental related revenue to the City.

K. If any violation of this Chapter is found to exist, the City may recover attorneys' fees, court costs, fees, and other reasonable costs in any civil or criminal action necessary to enforce the provisions of this Chapter.

L. If any violation of this Chapter is found to exist, the City may issue an administrative citation to any operator pursuant to Chapter 9.65 of this Code.

M. The City may take any other action permitted by law or equity to ensure compliance with this Chapter, including, but not limited to, general code enforcement procedures set forth in Titles 5, 9, 18 and 21 of this Code.

N. The City may issue and serve administrative subpoenas as necessary to obtain specific information regarding STR listings located in the

City, including, but not limited to, the names of the persons responsible for each such listing, the address of each such listing, the length of stay for each such listing, and the price paid for each stay, to determine whether the STR listings comply with this Chapter. Any subpoena issued pursuant to this Section shall not require the production of information sooner than thirty (30) days from the date of service. A person, hosting platform, or STR owner or operator that has been served with an administrative subpoena may seek judicial review during that thirty (30) day period.

O. Any person, hosting platform, or STR owner or operator aggrieved by a decision of the Director with respect to the provisions of this Chapter may appeal the decision to the Board of Examiners Appeals and Condemnation ("BEAC"). The decision of the BEAC shall be final, subject to judicial review pursuant to Code of Civil Procedure Sections 1094.5 and 1094.6.

P. The remedies provided in this Section are cumulative and not exclusive, and nothing in this Section shall preclude the use or application of any other remedies, penalties, or procedures established by law. (ORD-25-0001 § 1, 2025)

5.77.100 Fees.

The City Council may establish and set by resolution all fees and charges as may be necessary to effectuate the purpose of this Chapter. (ORD-25-0001 § 1, 2025)

5.77.110 Administration.

A. The City Manager, or designee, shall have the authority to establish administrative rules and regulations consistent with the provisions of this Chapter for interpreting, clarifying, carrying out, furthering, and enforcing the requirements and the provisions of this Chapter.

B. If any provision of this Chapter conflicts with any provision of Title 21 (Zoning), the terms of this Chapter shall control. (ORD-25-0001 § 1, 2025)

5.77.120 Severability clause.

If any provision or clause of this Chapter or the application thereof to any person or circumstances is held to be unconstitutional or to be otherwise invalid by any court of competent jurisdiction, such invalidity shall not affect other section provisions or clauses or applications, and to this end the provisions, sections and clauses of this ordinance are declared to be severable. (ORD-25-0001 § 1, 2025)

CHAPTER 5.78 TATTOOING

5.78.010 Definitions.

The following words and phrases as used in this Chapter shall have the meanings attached to them in this Section unless otherwise clearly apparent from the context:

A. "Tattooing" means and includes the act or process of marking or coloring the skin of any person by the insertion of pigment under or in the skin or by the production of scars. (Ord. C-6260 § 1 (part), 1986)

5.78.020 Permit—Application.

A. Each and every person engaged in the art of tattooing or desiring to carry on the business of tattooing or conducting or maintaining a place where tattooing is practiced, shall make a written application to the Director of Financial Management, on forms prescribed by the City Health Officer, for a permit to conduct the business. The application shall be signed and sworn to by the applicant and shall state the true or fictitious name or names of the applicant, his age, present street address, and other address or addresses where applicant may have lived or carried on such business during the six (6) months immediately preceding the date of the application; the name under which, and place where the applicant proposes to conduct the business.

B. The application shall also include a photograph in duplicate of the applicant, of a size prescribed by the Director of Financial Management, the photograph to be attached to the original permit application, and one (1) to the permit, if a permit to engage in or conduct or carry on the business is granted the applicant.

C. The permit application shall be transmitted by the Director of Financial Management to the City Health Officer, and the permit applied for shall not be issued to the applicant until a satisfactory report is made by the Health Officer that the proposed place of business complies with the laws and ordinances, and conforms with the rules and regulations of the Board of Health. (Ord. C-6260 § 1 (part), 1986)

5.78.030 Permit—Fee.

Any person owning, maintaining or conducting a place where tattooing is practiced, or practicing the art of tattooing, shall pay a permit fee established by resolution of the City Council adopted pursuant to Section 5.04.040. (Ord. C-6260 § 1 (part), 1986)

5.78.040 Permit—Employee.

No person shall have in his employ any person engaged in the art of tattooing unless such person holds a permit from the City authorizing said person to engage in said art. (Ord. C-6260 § 1 (part), 1986)

5.78.050 Inspection authorized.

The Health Officer or any of his duly authorized agents shall have the right to enter and inspect any place where tattooing is practiced for the purpose of determining whether same is being conducted, managed or carried on in compliance with the rules and regulations and sanitary requirements of the Health Department. (Ord. C-6260 § 1 (part), 1986)

CHAPTER 5.80 VEHICLES FOR HIRE*

5.80.010 Definitions.

For the purpose of this Chapter the following terms shall have the meanings respectively ascribed to them in this Section unless, from the particular context, it clearly appears that some other meaning is intended.

A. "Vehicles for hire" means every motor vehicle designed for carrying not more than eight (8) persons, excluding the driver, which is covered by this Chapter, and where the destination and route are under the control of the passenger(s) being carried or other person hiring the vehicle for compensation.

B. "Carrier" means every person, corporation, partnership, joint venture or other form of business organization, their lessees, receivers or trustees, engaged in operating, or causing to be operated, any vehicle required by the provisions of this Chapter to obtain a permit.

C. "Chauffeured limousine" means a motor vehicle used for the transportation of passengers for hire along public streets, not over a defined route, but a route under the control of the person hiring such a vehicle, and the point of origin is within the City. A chauffeured limousine shall not bear any distinguishing insignia or monogram or top lights, and shall operate and be dispatched from a fixed location, and shall be hired by contract on a minimum hourly basis only; the minimum rates shall be approved by the City Council.

D. "City Council" means the City Council of the City of Long Beach.

E. "Compensation" means any money, thing of value, payment, consideration, reward, tip, donation, gratuity or profit paid to, accepted, or received by the driver of any vehicle in exchange for transportation of a person or persons, whether paid upon solicitation, demand or contract or voluntarily, or intended as a gratuity or donation.

F. "Driver" means every person driving, operating or in charge of any vehicle as defined by this Chapter.

G. "Driver's permit" means the permit issued by the Chief of Police to any persons operating or driving any vehicle as defined by this Chapter.

H. "Institution of learning" means a school wherein is conducted a regular program of general education and instruction in the public schools of the State.

*Charter reference—Provisions on franchises, see the City Charter.

State law reference—Provisions authorizing local authorities to license and regulate the operation of taxicabs, Veh. C. §§ 16501 and 21100.

I. "Jitney" means every motor vehicle of a distinct color or commercial appearance used in the business of carrying passengers; and which is hired from any fixed stand or location, or is hailed; and which travels along a fixed route; for a compensation which is fixed according to the distance traveled.

J. "Motor vehicle" or "vehicle" means every motor-propelled vehicle used for the transportation of persons over the public streets, and not upon rails or tracks.

K. "Permittee" means every person to whom a permit has been issued pursuant to this Chapter.

L. "Person" means a natural person, his heirs, executors, administrators or assigns, and also includes a firm, partnership or corporation, its or their successors or assigns or the agent of any of the aforesaid.

M. "Ambulance" means a vehicle designed and used for the purpose of transporting sick, disabled or injured persons for compensation over the streets of the City, other than vehicles operated by the City or any public agency. Without limiting the generality of the foregoing, this definition includes those vehicles commonly referred to as "gurney vans" and "wheelchair vans".

N. "Sightseeing vehicle" means every vehicle other than taxicabs, jitneys, chauffeured limousines and automobiles for hire used for the transportation of passengers for compensation over the streets of the City whether or not over defined routes for sightseeing purposes or for showing points of interest when the route is designated by the carrier and when the point of origin is within this City.

O. "Taxicab" means every motor vehicle of a distinct color or commercial appearance used for the transportation of passengers and/or baggage and packages over the streets of the City for compensation irrespective of whether or not the operation extends beyond the boundaries of the City; and whose service is demand-responsive; and whose fare is determined and indicated by a taximeter, or by posted rates pertaining to a shared ride; and which has a top light; and a uniform monogram or insignia, a vehicle number, and telephone number clearly visible on the body of the vehicle; and whose route and destination are under the exclusive control of the passengers being transported.

P. "Taximeter" means a mechanical or electronic device by which the charge for hire of a taxicab is automatically calculated, either for distance traveled or for waiting time, or both, and upon which such charge is plainly registered by means of figures indicating dollars and cents.

Q. "Stand" means a particular place on a public street in the City which has been designated by the City Council for the use of the particular vehicles authorized by this Chapter to stop or stand in said place while awaiting employment.

R. "Taxicab operator" means any person driving, operating, or in charge of a taxicab, as defined in this Section.

S. "Authorized City Licensed Fleet" means any person or entity approved by the City Council and holding a valid permit under this Chapter authorizing the operation of a fleet of taxicabs under common branding to provide taxicab services within the City. (ORD-26-0007 §§ 1—3, 2026; Ord. C-7277 §§ 1, 4, 1994; Ord. C-7001 § 1, 1992: Ord. C-6260 § 1 (part), 1986)

5.80.020 Permit—Required.

No person shall drive, operate or cause to be operated, nor shall any person employ, permit or allow another to drive, operate or cause to be operated, any vehicle over any street of this City for the purpose of transporting any passenger or passengers for compensation, regardless of whether such operation extends beyond the boundary limits of the City, nor shall any person solicit, induce, persuade, invite or procure such transportation of passengers for compensation or accept compensation therefor without a permit first having been obtained from the City Council authorizing such operations and acts, except:

A. A vehicle which is lawfully transporting a passenger or passengers from a point outside the City to a destination within the City or is en route to a destination outside the City; provided that no

driver shall, without such permit, solicit, or accept a passenger or passengers from within this City for transportation to any destination whatsoever;

B. A vehicle being operated pursuant to a franchise or permit issued by the City and vehicles operated by public agencies;

C. A vehicle being operated for the purpose of transporting bona fide pupils attending an institution of learning between their homes and such institutions;

D. A vehicle being operated under what is commonly referred to as a "share the ride" plan or arrangement, where a person en route from his place of residence to his place of business, or vice versa, transports another person or other persons living and working in the same general vicinities upon payment of a sum estimated to cover the actual or approximate cost of operation of the vehicle;

E. Vehicles rented or leased for self-operation by a person using such vehicle under a plan commonly known as a U drive, but not when transporting other persons for compensation;

F. Vehicles used exclusively in funerals by a person engaged in the business of undertaker or funeral director;

G. Vehicles operating pursuant to a certificate of public convenience and necessity issued by the California Public Utilities Commission, but only to the extent, character and type of operation and regulation expressly prescribed by the certificate issued by said Commission. No person shall be exempt from the provisions of the ordinance codified in this Chapter if operating pursuant to an exemption certificate issued by either the State Public Utilities Commission or Interstate Commerce Commission. (Ord. C-6260 § 1 (part), 1986)

5.80.030 Permit—Application.

A. Any person desiring a permit to operate vehicles covered by this Chapter shall file an application therefore with the City Council. Such petition shall be verified by oath of the applicant, if a natural person; or by oath of an officer or partner of the applicant, if applicant is a corporation, partnership, association or unincorporated company, and which application shall set forth the name, age and address of the applicant, if a natural person; or if a corporation, its name, date and place of incorporation, address of its principal place of business and the names of all its officers together with their respective addresses and, if the applicant is an association or cooperative of taxicab operators, the name and residence address of each member; or if a partnership, association or unincorporated company, then the names of the partners comprising the partnership, association or company, together with their respective addresses.

The application shall also state:

1. The trade name or style under which the applicant proposes to operate;

2. Full information pertaining to the extent, character, and quality of the proposed operations and the manner in which such proposed operations are to be conducted;

3. The type(s) of motor vehicle(s) and the name(s) of the manufacturer or popular name;

4. The vehicle factory and State license numbers;

5. The vehicle manufacturer's seating capacity;

6. The color and unique monogram or insignia proposed;

7. The condition of vehicle(s) proposed to be operated;

8. A full statement of the applicant's assets and liabilities;

9. Such other or additional information as the City Council may require.

B. The City Council shall, upon receipt of the application, make full and complete inquiry into the facts set forth therein and shall either grant or deny a permit upon the proposed terms, or upon terms and conditions other than those proposed. The permit shall authorize the operation of a specified number of vehicles which may be increased only by action of the City Council. When issued the permit shall constitute evidence of compliance with the terms of this Chapter and shall authorize the permittee to operate vehicles under the conditions therein specified; subject, however,

to the requirements, obligations and limitations imposed by other applicable laws, ordinances, and orders of the City Council, and shall become effective only upon payment of the applicable fees as prescribed by resolution of the City Council. (ORD-26-0007 § 4, 2026; Ord. C-6260 § 1 (part), 1986)

5.80.035 Ambulance permits.

A. Notwithstanding the provisions of Sections 5.80.030 and 5.80.060 to the contrary, any person desiring a permit to operate ambulances within the City shall file an application with the City Manager. The application shall be verified by the oath of the applicant, if a natural person; or by oath of an officer or partner of the applicant, if applicant is a corporation, partnership association or unincorporated company, and which application shall set forth the name, age and address of the applicant, if a natural person; or if a corporation, its name, date and place of incorporation, address of its principal place of business and the names of all its officers, together with their respective addresses; or if a partnership, association or unincorporated company, then the names of the partners comprising the partnership, association or company, together with their respective addresses. The application shall also include:

1. The trade name or style under which the applicant proposes to operate;

2. Complete details regarding the service proposed, including the days and hours, service area, dispatch procedures, employee training, safety record, and method for monitoring the quality of service;

3. A business plan for operation in the City. This must include financial statements, indicating viability of the company;

4. Proof of liability insurance, as required by Section 5.80.050;

5. Proof of inspection and certification of vehicles as required by law and a statement that there are no outstanding parking and registration violations on any of the proposed vehicles.

B. The application shall be submitted to those City departments as determined necessary by the City Manager. Upon the review of the application and recommendation by those departments, and upon compliance by the applicant with all of the requirements of this Section and all applicable provisions of this Chapter, the City Manager or his designated representative shall issue a permit for the operation of the ambulance service. (Ord. C-7277 § 3, 1994)

5.80.040 Term and renewal of permits.

All permits issued under the provisions of this Chapter shall be for a period of not to exceed one (1) year and all permits shall expire on December 31 at twelve o'clock (12:00) midnight; however, such permits shall be renewed annually by the City Manager upon application of the permittee, provided the City Manager determines that the permittee during the prior permit period has operated in conformity with the provisions of this Chapter and that permittee is capable of such continued operation in the succeeding year. Renewal applications shall be filed on or before November 1 and shall be made on a form provided or otherwise approved by the City Manager or his designee and taxicab and ambulance first shall provide a report on the prior year's operations and a current financial statement in a form approved by the City Manager.

A determination by the City Manager that a permit shall not be renewed shall be final unless an appeal therefrom is taken to the City Council by the filing of a notice of appeal with the City Clerk after notice of City Manager's decision in writing. Permittee shall be notified in writing by the City Clerk of the date, time and place of hearing. At the time set, the Council shall hear the permittee, City Manager, and other interested persons and may either affirm or annul the City Manager's decision. The decision of the City Council shall be final. (Ord. C-6260 § 1 (part), 1986)

5.80.050 Insurance and indemnity.

A. The applicant shall file with the Director of Financial Management insurance as prescribed in regulations issued by the City Manager pursuant to Section 2.84.040.

B. The applicant shall maintain the insurance in full force and effect during the time any vehicles are operated pursuant to a permit issued under this Chapter. Failure to maintain such insurance shall be cause for suspension and revocation of a permit pursuant to Section 5.80.100.

C. Prior to the issuance or renewal of a permit, the applicant or permittee shall execute an indemnity agreement on a form provided by the City which provides that, by the acceptance or use of the permit, permittee shall defend, indemnify and hold harmless the City, its officials, agents, and employees from and against any and all claims, demands, damage, causes of action, proceedings, loss, liability, costs and expenses (including reasonable attorney fees) (collectively in this Subsection, "claim") alleging injury to or death of persons or damage to property and that such injury, death or damage arises from or is attributable to or caused by the operations conducted pursuant to said permit and provides that permittee shall notify the City of any claim within ten (10) days.

D. No person shall operate or permit the operation of any vehicle described in this Chapter unless there is, on file, insurance as prescribed in regulations issued by the City Manager pursuant to Section 2.84.040. (Ord. C-7934 § 12, 2004: Ord. C-7277, § 2, 1994; Ord. C-6317 § 1 (part), 1986: Ord. C-6305 § 1, 1986: Ord. C-6260 § 1 (part), 1986)

5.80.060 Permit Hearing.

No permit shall be granted to any "carrier", as defined in this Chapter, except after a hearing thereon conducted under and in accordance with such rules and regulations as may from time to time be prescribed by the City Council, nor until the City Council has determined that the public convenience and necessity require the operation proposed by the applicant for the permit. The City Council, in determining whether or not such facts exist, shall take into consideration the public demand for the service, the adequacy or inadequacy of service being rendered by other carriers, the effect of the service upon traffic, the financial responsibility of the applicant, the amount of wages to be paid to employees, the character of equipment proposed to be furnished, the history of claims, insurance and accidents, and any and all other facts which the City Council may deem relevant. In addition, the City Council may consider whether the applicant is capable of providing safe and prompt taxicab service and whether any proposed schedule of rates is fair and reasonable. Before granting any such permit, the City Manager or his designated representative shall present to the City Council, either orally or in writing, a report, together with his opinion, as to the existence of public convenience and necessity for the operation of additional vehicles. However, the burden of establishing the existence of public convenience and necessity shall always be borne by the applicant for a permit, and no such permit shall be issued unless there has been an affirmative showing of the existence of such public convenience and necessity by the applicant. (ORD-26-0007 § 5, 2026; Ord. C-7691 § 1, 2000: Ord. C-6260 § 1 (part), 1986)

5.80.070 Application/permit fees.

A. A nonrefundable application fee to defray the cost of processing the application for a permit under this Chapter shall be required to be paid by every applicant seeking such a permit.

B. A permit fee shall be required to be paid by each applicant whose application for a permit has been granted and for permit renewals, pursuant to the provisions of this Chapter, to defray the cost of processing the permit.

C. The City Manager is authorized to establish the amount of the application and permit fees which amount shall not exceed the actual cost of processing the application and the permit. (Ord. C-6260 § 1 (part), 1986)

5.80.080 Permit—Annexed areas.

A. Notwithstanding any provision in this Chapter to the contrary, any person who has been authorized by proper governmental authority to operate vehicles for hire in an unincorporated area which is later annexed to the City, and who is so authorized at the completion of such annexation

proceedings, may, upon the application of such person therefor, and at the discretion of the City Council, be issued a permit to operate vehicles for hire in the annexed area. Application for such permit shall be made and the permit may be issued in accordance with the provisions of this Chapter, except that no hearing thereon is required and no such person shall be required to establish the existence of public convenience and necessity for such operation in the annexed area. In such case, the City Council shall be under no duty, as a condition precedent to the issuance of such permit, of determining that the public convenience and necessity require the operation.

B. Nothing in this Section nor in any permit issued pursuant to this Section shall be construed as authorizing the permittee to operate in any portion of the City other than the annexed area, except when transporting a passenger or passengers from a point within such area to any other point within the City. In no event shall the permit authorize the permittee to solicit or accept a passenger or passengers from within any portion of this City, other than the annexed area, for transportation to any destination whatever. Nothing in this Section nor in any permit issued pursuant to this Section shall exempt the permittee from the necessity of complying with the remainder of the provisions of this Chapter or the provisions of any other ordinance of the City applicable to his operation or lawful rule or regulation of the City Council. (Ord. C-6260 § 1 (part), 1986)

5.80.090 Permit decal.

There shall be displayed upon each vehicle for hire operated pursuant to the terms of this Chapter, an identifying decal for the permitted period in the lower right corner of the windshield in such a manner that a serial number shall be clearly visible from the exterior of the vehicle.

In addition, each taxicab shall display the Taxicab Operator's identification card and/or permit in a manner approved by the City Manager. The City Manager may authorize display through a City-approved digital platform or application, provided the required information is continuously and readily available for inspection and passenger viewing, and provided a physical display remains available upon request by the City. (ORD-26-0007 § 6, 2026; Ord. C-6260 § 1 (part), 1986)

5.80.100 Permit—Suspension or revocation.

The City Manager shall have the power to suspend or revoke any or all of the carrier permits granted under the provisions of this Chapter when it has been determined that any of the provisions of this Chapter have been violated, or that any holder of such a permit has failed to comply with the terms of such permit or the rules and regulations of the City Council pertaining to the operation and to the extent, character and quality of the service of any such vehicles. The City Manager shall give notice of the suspension or revocation in writing to the permittee and the notice shall state the grounds upon which the suspension or revocation is based. A determination by the City Manager that a permit shall be suspended or revoked shall be final unless an appeal therefrom is taken to the City Council by the filing of a notice of appeal with the City Clerk within ten days after notice of suspension or revocation. Permittee shall be notified in writing by the City Clerk of the date, time and place of the hearing. At the time set, the Council shall hear the permittee, City Manager, and other interested persons and may either affirm or annul the City Manager's order. The decision of the City Council shall be final. (Ord. C-6260 § 1 (part), 1986)

5.80.110 Permit—Business license issuance.

Each permit issued pursuant to the requirements of this Chapter shall entitle the holder thereof to obtain a license to engage in the business described in the permit upon payment of the tax required by the licensing provisions of this Code, provided the holder of the permit complies with all other applicable provisions of law or ordinance. (Ord. C-6260 § 1 (part), 1986)

5.80.120 Authorized service only.

No carrier granted a permit under this Chapter shall conduct any operation or engage in, fur-

nish, or render any service other than the service authorized by its permit granted by the City Council in accordance with the provisions of this Chapter. (Ord. C-6260 § 1 (part), 1986)

5.80.130 Service availability.

Taxicab service shall be available twenty-four (24) hours a day by telephone through a radio dispatch service, online booking, and/or a smartphone application, or by engagement of the taxicab when standing at a stand or when properly hailed from the street or curb. All taxicabs shall be equipped with a means of communication with the dispatch office, which may include a two-way radio or cellular system. Telephone calls for service shall be answered in a reasonable time. No driver shall work any shift which exceeds twelve hours, and all shifts are to begin and end at the garage. When a taxicab of such carrier is standing in a stand, no carrier or driver of a taxicab shall refuse or neglect to transport any orderly person or persons upon request anywhere in the City, and such service shall be rendered immediately upon request unless the driver is in physical danger. (ORD-26-0007 § 7, 2026; Ord. C-6260 § 1 (part), 1986)

5.80.135 Posting of customer service notice.

There shall be displayed in each taxicab, in a place easily read by passengers, a notice, in both English and Spanish, which informs passengers of their right to make customer service inquiries or complaints to the City. Said notice shall provide a telephone number of the appropriate City department. The form and content of the notice shall be approved by the City Manager before it is posted in any taxicab.

The City Manager may require additional languages based on community need and operational feasibility, and shall approve the form and content of any such notice before it is posted. (ORD-26-0007 § 8, 2026; Ord. C-7691 § 2, 2000)

5.80.140 Rates—Establishment.

No rate or fare shall be placed in effect, charged, demanded or collected by any carrier for the transportation of passengers by vehicle covered by this Chapter until the rate or fare has been established and authorized by City Council and the City Council, after a hearing upon its own motion, or upon application, or upon complaint, has found and determined the rate to be just, reasonable and nondiscriminatory, and not in violation of any provisions contained in this Chapter or any other provision of law. In establishing and authorizing such rates or fares the City Council must take into account and give due and reasonable consideration to the cost of all comparable transportation services performed by all persons engaged in the transportation of persons for compensation in the City, whether by virtue of any franchise or permit granted by the City Council or otherwise, including length of haul, any additional transportation service performed or to be performed, or of any accessory service and the value of facilities reasonably necessary to perform such transportation service.

Notwithstanding the foregoing, a taxicab permittee or Authorized City Licensed Fleet may establish and charge variable or demand-based rates provided that such rates are just, reasonable, and nondiscriminatory, and not in violation of any provision of this Chapter or other applicable law.

A. Rates filing. Rates shall be filed with the City on a schedule established by the City Manager (which may be monthly) and shall be promptly available to the public through the permittee's or fleet's website and/or mobile application.

B. Notice of rate changes. The permittee or fleet shall provide at least thirty (30) days' advance notice to the City of any material rate change, in a form approved by the City Manager.

C. Rate transparency. The City Manager may require sufficient information to verify compliance with this Chapter, including a description of rate components, variations, and surcharges; provided, however, that nothing in this Section requires disclosure of proprietary trade secret information beyond what is reasonably necessary to verify compliance. (ORD-26-0007 § 9, 2026; Ord. C-6260 § 1 (part), 1986)

5.80.150 Rates—Enforcement.

Upon the granting of any permit to any carrier as provided by this Chapter, a copy of the permit setting forth the rates established and authorized by the City Council shall be transmitted by the City Clerk to the Chief of Police, who shall, thereupon, be charged with the duty of enforcement of the rates and the applicable provisions of this Code and other ordinances pertaining to the operation of vehicles for hire. (Ord. C-6260 § 1 (part), 1986)

5.80.160 Rates—Display.

A. Every taxicab used or operated under this Chapter shall, at all times, have displayed therein in a location or locations and in a manner prescribed by the City Manager, the rates to be charged for the taxicab service, which rates shall be visible to all passengers in the taxicab at all times.

B. The driver of every chauffeured limousine shall at all times have in his or her possession rate cards upon which shall be printed the name and address of the permittee and the rates authorized to be charged for the chauffeured limousine service. Every person making inquiry regarding the rates charged by the chauffeured limousine service shall be furnished with a copy of the printed rates. (Ord. C-6260 § 1 (part), 1986)

5.80.170 Rates—Alteration.

The City Council shall, upon a hearing upon its own motion, or upon application, or upon complaint, investigate a single rate or fare, or the entire schedule of fares in effect, charged, demanded or collected for the transportation of passengers by vehicles covered by this Chapter and to establish a new rate, fare or schedule of fares in lieu thereof. (Ord. C-6260 § 1 (part), 1986)

5.80.180 Rates—Discrimination prohibited.

No carrier, or any agent or employee thereof, or any driver or operator of any vehicle covered by this Chapter, shall charge, collect, demand, receive, arrange, solicit or bargain for any amount of compensation other than the rates or fares established and authorized by the City Council or lawfully established and filed pursuant to Section 5.80.140. (ORD-26-0007 § 10, 2026; Ord. C-6260 § 1 (part), 1986)

5.80.190 Taximeters.

A. No carrier shall operate any taxicab in the City unless and until the taxicab is equipped with a taximeter of a type and design which has been approved by the City Manager, and it shall be the duty of the carrier operating such taxicab, and also the driver taxicab operator thereof, to keep the meter operating at all times within such standard of accuracy as may be prescribed from time to time by the City Manager. No passengers shall be carried in any such cab unless the taximeter is in operation, unless the taxicab is carrying multiple passengers and the meter and flat rate schedule for this service is clearly posted for passenger viewing. This provision shall apply whether the taxicab is engaged for a trip entirely within the boundaries of the City or partially outside thereof, and the meter shall be kept operating continuously during the entire time that the vehicle is engaged in the transportation of passengers for compensation, regardless of the point of destination.

B. The taximeter shall be placed in each taxicab so that the reading dial showing the amount to be charged shall be well lighted and readily discernible to any passenger riding in such taxicab.

C. Every taximeter used in the operation of taxicabs shall be subject to inspection at any time by the City, or any of its agents or employees. Upon discovery or notification of any inaccuracy of the taximeter, the operator thereof shall remove, or cause to be removed from service any vehicle equipped with said taximeter until the taximeter has been repaired and accurately adjusted.

D. Every taximeter shall be inspected and tested for accuracy by the carrier at least once every six (6) months. Upon the completion of such inspection and of any adjustments necessary to cause the taximeter to operate within the standards of accuracy approved by the City Council,

the carrier shall cause to be placed upon the meter an adhesive label having printed thereon the following:

The taximeter was inspected and tested on _____ (date), and found to comply with standard of accuracy prescribed by the City Council of the City of Long Beach.

The date on which the inspection was made shall be stamped in the blank space provided for that purpose. No such label shall be removed except at the time a subsequent inspection is made.

E. No driver of any taxicab, while carrying passengers, shall display the flag attached to the taximeter in such a position as to denote that the vehicle is not employed, or fail to throw the flag of the taximeter to a position indicating the vehicle is unemployed at the termination of each and every service.

F. All charges for taxicab service shall be calculated and indicated by a taximeter or a rate schedule for multiple passenger service, and at all times which the taxicab is engaged, the taximeter shall register charges for mileage or charges for waiting time. No taximeter shall be so operated as to cause any charge to be registered thereon except during the time while the taxicab is engaged by a passenger or passengers. (ORD-26-0007 § 11, 2026; Ord. C-6260 § 1 (part), 1986)

5.80.200 Waiting time designated.

For the purpose of this Chapter, "waiting time" means the time consumed while the taxicab is not in motion at the direction of a passenger and also the time consumed while waiting for a passenger after having responded to a call; but no charge shall be made for the time consumed by the premature response to a call or for the first three (3) minutes following timely arrival at any location in response to a call or for delays caused by the inefficiency of the taxicab or its driver. (Ord. C-6260 § 1 (part), 1986)

5.80.210 Receipt on request.

No driver of any taxicab, upon receiving full payment for a fare as indicated by the taximeter, shall refuse to give a receipt upon the request of any passenger making such payment. When the taximeter is of the so-called "receipt type," a receipt shall be offered the passenger upon receiving payment without a request being made for said receipt. (Ord. C-6260 § 1 (part), 1986)

5.80.220 Refusal to pay fare.

No person shall refuse to pay the authorized fare of any of the vehicles mentioned in this Chapter after having employed the same, and no person shall hire any vehicle defined in this Chapter with intent to defraud the person, from whom it is hired or engaged, of the value of such service. (Ord. C-6260 § 1 (part), 1986)

5.80.230 Route—Number of passengers.

A. Every driver of a taxicab who is engaged to carry passengers shall take the most direct route possible that will carry the passengers safely and expeditiously to their destinations, unless otherwise directed by a passenger.

B. When a taxicab is engaged, the person engaging the taxicab shall have the exclusive right to the full and complete use of the passenger compartment, and it shall be unlawful for the carrier or driver of the taxicab to solicit or carry additional passengers.

C. The driver of a taxicab may transport two (2) or more passengers who voluntarily agree to share the vehicle from the same pickup point to one (1) discharge point. The rate schedule for point-to-point service must be clearly posted in passenger's view. A passenger who first engages a taxicab has the exclusive right to conveyance therein to a destination and the driver may not solicit additional passengers without the express permission of the first passenger.

D. The number of adult passengers which may be carried in any vehicle covered by this Chapter shall be limited to the seating capacity of the vehicle as specified by the manufacturer. The number of passengers consisting of children attending schools below the junior high school level which may be carried in any vehicle covered by this Chapter, shall be limited to adult seating capacity of the vehicle as specified by the manufacturer plus one.

No person shall be carried in such vehicle who is required to share in any way the seating space occupied by another, nor shall any person be carried who is required to occupy a space in or on the vehicle which is not a seat. (Ord. C-6260 § 1 (part), 1986)

5.80.240 Cruising—Loading.

No driver of a vehicle permitted to operate under this Chapter, while driving such vehicle, shall cruise, loiter or stop on a public street for the purpose of soliciting passengers or seeking a place in a stand which is already occupied. However, employment may be accepted when such vehicles are hailed from the street or curb, while proceeding to a regularly assigned stand for taxis or a regularly established call station or to the carrier's principal place of business; provided that no driver shall accept passengers at any of the following places:

A. In any marked or unmarked crosswalk;

B. At any regularly established bus stop;

C. At any place in a street except alongside a curb;

D. Alongside any curb opposite a regularly established and marked traffic safety zone. (Ord. C-6260 § 1 (part), 1986)

5.80.250 Trip sheet and daily report.

The driver of every vehicle covered by this Chapter shall keep a complete and accurate record of each trip upon a daily trip sheet the form of which shall be approved by the City Manager, showing the time and place of origin and destination of the trip, the number of passengers carried, the mileage and the amount of fare collected and all telephone orders. This record shall be filed daily by the driver with the company by whom he is employed and such record shall be kept on file available for inspection by the City, or any of its agents or employees, for a period of not less than six (6) months. (Ord. C-6260 § 1 (part), 1986)

5.80.260 Numbering.

Each taxicab operated pursuant to the terms of this Chapter shall be numbered. Such number shall be painted upon the body of the taxicab in numerals not less than four inches (4") nor more than six inches (6") in height in a position, or positions, approved from time to time by the City Manager. (Ord. C-6260 § 1 (part), 1986)

5.80.270 Inspection of vehicles.

A. All vehicles operated by any carrier as defined in this Chapter shall, before being placed in service, be approved by the City Manager or his designee. All such vehicles shall be of a design and type of construction as shall comply with orders and regulations pertaining to such equipment adopted from time to time by the City Council. Such vehicles shall at all times be kept in a clean and sanitary condition and in good state of repair and shall be subject to constant inspection by the City Manager or his designee. Any vehicle which becomes unsafe or unserviceable, either from the standpoint of state of repair or obsolescence, may be retired from service upon order of the City, and no vehicle which has been so retired shall be again operated in such service except with approval of the City.

B. In the event the condition of any vehicle, in the opinion of the City Manager or his designee, is so unclean, unsightly or mechanically defective as to be undesirable for use by the public, the City Manager or his designee may require the vehicle to be immediately withdrawn from service and the vehicle shall not be again placed in service until approved by the City Manager or his designee. (Ord. C-6260 § 1 (part), 1986)

5.80.280 Name or coloration.

A. No permit shall be granted to any carrier to operate any vehicle covered by this Chapter whose color scheme, name, trade name, monogram or insignia is in conflict with or in imitation of any color scheme, name, trade name, monogram or insignia used by any other carrier, and which is of such character and nature as to be misleading or deceptive to the public.

B. It shall be unlawful for any owner of any taxicab to make or cause to be made any change whatever in the color scheme, name, trade name,

monogram or insignia of said taxicab unless the approval of the City Council has been obtained. (Ord. C-6260 § 1 (part), 1986)

5.80.290 Identity lights.

Every taxicab shall be equipped with an identity light attached to the top of such taxicab. The identity light shall be constructed in one (1) unit consisting of an illuminated plate or cylinder upon which shall be printed either the words "For Hire", "Taxi", the name of the carrier or the telephone number of the carrier. The overall dimensions of the identity light shall not exceed six inches (6") in height by twenty inches (20") in length. The lights of the identity light unit shall be connected to a contact switch attached to the taximeter, and the contact switch shall operate automatically to illuminate the identity light when the taximeter is not in operation indicating the cab is vacant and for hire, and to extinguish the identity light when the taximeter is in operation. No person shall drive or operate any taxicab with the identity light illuminated while carrying passengers for compensation; and when the taxicab is for hire, no person shall drive, operate or be in charge of any taxicab unless the identity light is illuminated. (Ord. C-6260 § 1 (part), 1986)

5.80.292 Taxicab driver appearance standard.

Every Taxicab Operator and/or Authorized City Licensed Fleet to whom a taxicab permit is issued pursuant to this Chapter shall submit to the City Manager for approval prior to commencing operations, a distinctive Taxicab Operator appearance standard which clearly identifies the Taxicab Operator and his/her affiliation with the permittee and/or Authorized City Licensed Fleet. Every Taxicab Operator, while on duty, shall conform to the taxicab permittee's or fleet's appearance standard and shall wear clothes that are neat and clean and shall be well groomed at all times while on duty. (ORD-26-0007 § 12, 2026; Ord. C-7633 § 1, 1999)

5.80.300 Advertising.

No advertising device shall be placed on or in any taxicab operated pursuant to the terms of this Chapter without the approval of the City Manager or his designated representative. (Ord. C-6260 § 1 (part), 1986)

5.80.310 Taxi driver permit—Application.

A. No person shall drive, operate or lease a taxicab which is subject to this Chapter, and no person shall own any share or be a member of a taxicab cooperative carrier to which a taxicab permit has been issued pursuant to this Chapter, without having first obtained a driver's permit issued pursuant to this Chapter to do so. For purposes of this Chapter, Taxicab Operators are "drivers" and must obtain and maintain a valid driver's permit.

B. Applicants for such permit shall:

1. Deposit the fee required for the background investigation and secure a receipt therefor. The fees to be deposited are to cover the expenses incurred and no refund shall be made for any reason; and

2. Appear personally and file with the Chief of Police an application, in writing, upon forms to be approved by the Chief of Police, containing such information as said officer may require, and shall satisfy the Chief of Police that the deposit required in this Chapter has been made.

C. When an applicant has applied for a driver's permit and has paid the fee required for such permit, the Chief of Police shall, subject to the conditions contained in Subsection 5.80.310.E, issue a temporary driver's permit. Such temporary driver's permit shall have written or printed thereon the expiration date.

D. As soon as possible thereafter, the Chief of Police shall make an investigation regarding the applicant. If satisfied that the operation by applicant of a vehicle authorized to be operated under the terms of this Chapter will not be detrimental to the public health, peace, safety or welfare, he shall issue to applicant a driver's permit in the manner provided in this Section; otherwise he shall deny the application.

E. No driver's permit shall be issued to any such applicant who is under the age of eighteen (18) years, or who has failed to obtain a valid California driver's license, or for any of the rea-

sons known to the Chief of Police which are grounds for revocation as set forth in Subsection 5.80.320.A.

F. If the Chief of Police has determined that he will approve an application for a driver's permit, he shall issue to applicant an identification card authorizing the applicant to drive, operate or be in the charge of any vehicle operated pursuant to the terms of this Chapter. The driver's permit shall be effective until the expiration date printed thereon unless suspended or revoked as provided elsewhere in this Chapter.

G. All permits issued as provided in this Section shall initially expire one (1) year from the applicant's next birthday. The permit may be renewed biennially thereafter, provided that the permittee pays all applicable fees and submits to a background investigation and that the Chief of Police finds no basis for denial of the permit.

H. All drivers' permits authorized to be issued under this Section shall be effective only while the driver to whom the permit is issued is employed by, is leasing a vehicle as an independent driver from, or is otherwise authorized to operate a taxicab by a carrier holding a valid permit issued pursuant to the provisions of this Chapter. Upon the driver terminating his employment, his independent contractor status with a carrier, or a lease with a carrier, or otherwise ceasing to be a member or owner of a taxicab cooperative carrier authorized by this Chapter, then the driver's permit shall automatically be suspended and shall become effective again only when and if the driver again is reemployed, otherwise assumes his independent driver status with a carrier, or assumes an ownership or membership interest in a taxicab cooperative carrier authorized by this Chapter, during the term for which the driver's permit or temporary driver's permit was issued. All driver's permits shall be returned to the Chief of Police by the driver upon their suspension or revocation. A carrier shall notify the Chief of Police upon the termination of employment, the termination of independent ownership status or termination of any ownership or membership status with the carrier. (ORD-26-0007 § 13, 2026; Ord. C-7574 §§ 1, 2, 1998; Ord. C-7423 § 11, 1996: Ord. C-7372 § 1, 1995; Ord. C-6260 § 1 (part), 1986)

5.80.315 Driver permit—Mandatory controlled substances and alcohol testing certification.

A. As used in this Section, the following definitions shall apply:

1. "Controlled substance" shall mean those substances specified in Part 40 (commencing with Section 40.1) of Title 49 of the Code of Federal Regulations, as it exists on the effective date of this Ordinance, or as it may be amended.

2. "Negative test for alcohol" shall mean an alcohol screening test showing a breath alcohol concentration of less than 0.02 percent.

B. Drivers shall test negative for each of the controlled substances specified in Part 40 (commencing with Section 40.1) of Title 49 of the Code of Federal Regulations, as it exists on the effective date of this Ordinance, or as it may be amended, before employment. Drivers shall test negative for these controlled substances and for alcohol as a condition of granting a permit or permit renewal of their driver's permit issued by the Chief of Police.

C. Testing procedures shall be substantially as in Part 40 (commencing with Section 40.1) of Title 49 of the Code of Federal Regulations, as it exists on the effective date of this Ordinance, or as it may be amended, except that the driver shall show a valid California driver's license at the time and place of testing, and except as provided otherwise in this Section. Requirements for rehabilitation and for return-to-duty and follow-up testing and other requirements, except as provided otherwise in this Section, shall be substantially as in Part 382 (commencing with Section 382.101) of Title 49 of the Code of Federal Regulations, as it exists on the effective date of this Ordinance, or as it may be amended.

D. The holder of a taxi carrier's permit, or an applicant therefor, shall be responsible for ensuring that all persons employed by them as drivers, all applicants who have been offered positions of employment as drivers, all persons to whom vehicles are leased to be used as taxicabs and all persons otherwise entitled to drive a vehicle authorized to be operated within the City by a carrier

holding a valid permit issued pursuant to the provisions of this Chapter, have provided the Chief of Police with satisfactory proof of compliance with the drug and alcohol testing requirements contained in this Section.

E. Taxicab companies approved to operate in the City of Long Beach shall be responsible for the cost of drug and alcohol testing of drivers employed by them.

F. Self-employed independent drivers shall be responsible for compliance with, and shall pay all costs of, this program with regard to themselves. Employing taxicab carriers shall be responsible for compliance with, and shall pay all costs of, this program with respect to their employees and potential employees, except that a carrier may require employees who test positive to pay the costs of rehabilitation and of return-to-duty and follow-up testing.

G. Test results shall be reported directly to the employing taxicab carrier, who shall, within five (5) days of receipt of results, notify the Chief of Police of same. In the case of self-employed independent drivers all test results shall be submitted by the testing facility to the Chief of Police, who shall notify the taxicab carrier company of record, of any positive results.

H. The driver's permit of any person convicted of illegally using, possessing, selling, or driving under the influence of, any controlled substance or alcohol, shall be subject to suspension or revocation pursuant to the provisions of this Code.

I. A test in any jurisdiction shall be accepted as meeting the requirements of this Ordinance. Any negative test result shall be accepted for one (1) year as meeting a requirement for periodic permit renewal testing or any other periodic testing in any jurisdiction, if the driver has not tested positive subsequent to a negative result. However, an alternative negative result shall not be accepted as meeting the preemployment testing requirement for any subsequent employment, or any testing requirements under the program, other than periodic testing.

J. Upon the request of a driver applying for a permit, the Chief of Police shall provide the driver with a list of the consortia certified pursuant to Part 382 (commencing with Section 382.101) of Title 49 of the Code of Federal Regulations that the City knows offer tests in or near the jurisdiction.

K. All test results are confidential and shall not be released without the consent of the driver, except as authorized or required by law.

L. No evidence derived from a positive test result pursuant to the program shall be admissible in a criminal prosecution concerning unlawful possession, sale or distribution of controlled substances. (Ord. C-7574 § 4, 1998)

5.80.320 Driver permit—Revocation.

A. The Chief of Police shall summarily revoke any driver's permit issued under the provisions of this Chapter provided he has knowledge that the holder thereof:

1. Has been convicted of violating any of the applicable provisions of this Code, or

2. Has been convicted within the last seven (7) years of a felony, or the violation of any of the provisions of the State narcotic laws, or of assault, battery, or a crime involving moral turpitude, or

3. Has been convicted within the last five (5) years of driving while under the influence of intoxicants or narcotics or reckless driving, or

4. Has a driving record which shows a negligent operator point count as specified in Sections 12810 and 12810.5 of the California Vehicle Code. For the purposes of this paragraph, a plea or verdict of guilty, a finding of guilty by a court, a plea of nolo contendere, or a forfeiture of bail is deemed a conviction.

5. Has had more than three (3) chargeable vehicle accidents within the last three (3) years or more than one (1) such accident within the last year.

6. Has tested positive for alcohol or controlled substances as provided in Section 5.80.315.

B. Notwithstanding the provisions of this Section and Section 5.80.310, the Chief of Police may, using his sound discretion, take into account any mitigating circumstances concerning any of the criminal convictions, moving violations and acci-

dents enumerated therein, in deciding whether the applicant for a taxi driver's permit is a competent person to operate a taxi under the provisions of this Code, and in issuing, revoking or suspending the driver's permit. In utilizing his discretion, the Chief of Police shall take into account the following factors:

1. The severity of the crime in question;

2. The extent of the applicant's prior criminal record;

3. The nature of and circumstances surrounding the crime in relation to the type of permit sought by the applicant.

C. Any driver who may be aggrieved by the action of the Chief of Police in suspending or revoking his driver's permit, or any applicant who may be aggrieved by the denial by the Chief of Police of this application, within ten (10) days from such denial, suspension or revocation, may apply to the City Council for a hearing as to the matters in question, whereupon a time for the hearing shall be set, which shall be not later than thirty (30) days thereafter, at which time a full and complete hearing shall be held before the City Council. At the conclusion of the hearing the City Council may, exercising its sound discretion, affirm, modify or overrule the action of the Chief of Police, in which latter event the driver's permit shall be granted or reinstated, as the case may be, and the decision of the City Council shall be final. Such hearing, or application therefor, shall not, however, affect the order of suspension or revocation of the Chief of Police, unless and until acted upon and revoked or modified by the City Council.

D. The City Manager or his designee shall have power to suspend a driver's permit issued pursuant to the terms of this Chapter when he has personal knowledge of any violation of law or of this Chapter by the holder thereof. Such suspension shall be subject to ratification, modification or rescission by the City Council at any meeting thereof following such suspension and within thirty (30) days thereafter.

E. Any driver whose driver's permit is revoked pursuant to the provisions of this Chapter shall not be reinstated or granted a new permit before the expiration of one (1) year from the date of any such revocation. (Ord. C-7574 § 3, 1998; Ord. C-7372 § 2, 1995: Ord. C-6260 § 1 (part), 1986)

5.80.330 ID permit in vehicle.

No driver shall operate or be in charge of any vehicle without displaying in a conspicuous place a valid driver's ID issued pursuant to this Chapter, and no driver shall fail, while operating or in charge of such vehicle, to have in his immediate possession such driver's permit. (Ord. C-7423 § 12, 1996: Ord. C-6260 § 1 (part), 1986)

5.80.332 Misuse of driver's ID.

No driver operating or in charge of any vehicle covered by this Chapter shall display upon his person a driver's ID issued to another or use for the purpose of operating such vehicle a driver's permit issued to another. (Ord. C-7423 § 31, 1996: C-6260 § 1 (part), 1986)

5.80.340 Unlicensed operator prohibited.

No carrier, as defined in this Chapter, shall permit the operation of any vehicle covered by this Chapter by any person other than a holder of a driver's permit required by this Chapter. (Ord. C-6260 § 1 (part), 1986)

5.80.350 Carrier or employee operation.

A. Vehicles covered by this Chapter shall be operated only by the carrier or by a person employed by the carrier. Neither the carrier nor any person operating such vehicle shall enter into any contract, agreement or understanding between themselves by the terms of which any such person pays to, or for the account of, the carrier a fixed or determinable sum for the use or operation of such vehicle.

B. Notwithstanding the provisions of Subsection 5.80.350.A, a carrier having a valid taxicab permit issued pursuant to the provisions of this Chapter may operate or cause to be operated vehicles by persons who are other than employees of the carrier; provided, however, that the carrier

shall be fully responsible to the City for the operations conducted by the drivers and operators of any permitted vehicles. Further, should the operations of permittee fail to provide taxicab service to the public as required by public convenience and necessity, the terms of the permit and any other applicable laws, ordinances and orders of the City Council, the carrier's permit is subject to revocation or suspension pursuant to the terms of Section 5.80.100. (Ord. C-6317 § 1 (part), 1986: Ord. C-6305 § 2, 1986: Ord. C-6260 § 1 (part), 1986)

5.80.360 Stands.

No carrier or driver of any vehicle operated pursuant to the terms of this Chapter shall stand any such vehicle while awaiting employment at any place upon any portion of the street of the City other than at a place designated as a stand by the City Council for the nonexclusive use of such vehicles. (Ord. C-6260 § 1 (part), 1986)

5.80.370 Emergency or temporary service.

Notwithstanding any other provision contained in this Chapter, whenever, by reason of strikes, lockouts, public disaster, or other cause beyond the control of the City, there is a substantial reduction in public transportation facilities available for mass transportation in the City or if, by reason of special, temporary circumstances within the City which require increased transportation facilities and the presently authorized providers are unable to meet the increased demand for such services and the City Council determines that, by reason thereof, the public convenience and necessity require augmentation of the then-operating transportation facilities, the City Council shall have the power to grant special, temporary revocable permits to carrier; other than those permitted under the terms of this Chapter to operate their vehicles. Such special and limited operations shall be conducted as authorized by the City Council, and shall be governed by all applicable provisions as to rates, cruising, loading, operation of meters or passenger limits in cabs as may be provided by the City Council and contained in such special permits. (Ord. C-6260 § 1 (part), 1986)

5.80.380 Notice method.

Whenever a notice is required to be given, unless different provisions are otherwise specifically made in this Chapter, such notice may be given either by personal delivery thereof to the person to be notified, or by deposit in the United States mail in a sealed envelope, postage prepaid, addressed to the person to be notified at his last known business or residence address as the same appears in the public records, or other records pertaining to the matter to which the notice is directed. Service by mail shall be deemed to have been completed at the time of deposit in the post office. Proof of giving such notice may be made by an affidavit of any person over the age of eighteen (18) years, which affidavit shows service in conformity with this Chapter or other provisions of law applicable to the subject matter concerned. (Ord. C-6260 § 1 (part), 1986)

5.80.390 Penalty for violation.

Any person who violates any of the provisions of this Chapter, or of any permit issued by the City Council under this Chapter to any carrier, shall be guilty of a misdemeanor. (Ord. C-6260 § 1 (part), 1986)

5.80.400 Wheelchair Accessible Vehicles.

Authorized City Licensed Fleet shall have the ability to designate any operator within county jurisdiction to pick up pre-arranged trips requesting wheelchair accommodations. (ORD-26-0007 § 14, 2026)

Editor's note—ORD-26-0007 § 14, amended § 5.80.400 in its entirety to read as herein set out. Former § 5.80.400 was entitled "Taxi Regulation Modernization Pilot Program," and derived from ORD-15-0014 § 1, 2015.

5.80.410 Vehicle Safety Features.

A. Vehicle safety equipment. Every taxicab operated under this Chapter shall be equipped with and maintain in good working order all safety equipment required by applicable federal, state,

and local law, including but not limited to seat belts, lighting, mirrors, windshield wipers, horns, braking systems, and emergency warning devices.

B. On-board security camera systems.

1. The City Manager may, by regulation, require Authorized City Licensed Fleets and taxicab permittees to install and maintain an on-board video security camera system in taxicabs, for the purpose of promoting public safety and deterring criminal activity.

2. Any camera system shall be approved by the City Manager.

3. Audio recording shall not be required unless expressly authorized by law.

C. Use and access to recordings.

1. Recordings from any required security camera system may be used solely for legitimate safety, law enforcement, regulatory, or investigatory purposes.

2. Access to recordings by the City shall be limited to circumstances authorized by law, including pursuant to a subpoena, warrant, court order, or other lawful process.

3. Nothing in this Section authorizes general or routine monitoring of drivers or passengers by the City.

D. Notice to passengers. Each taxicab equipped with a security camera system shall display signage, in a form approved by the City Manager, informing passengers that video recording may occur for safety purposes.

E. Maintenance and compliance. Authorized City Licensed Fleets and permittees shall ensure that all required safety equipment and security systems are properly maintained, operational, and promptly repaired or replaced when defective. Failure to comply with this Section shall constitute grounds for administrative enforcement, permit suspension, or revocation pursuant to this Chapter. (ORD-26-0007 § 15, 2026)

5.80.420 Passenger Transport; Wheelchairs, Packages, and Service Animals.

A. A taxicab operator shall not refuse to transport a passenger's foldable wheelchair, personal luggage, groceries, or packages when accompanied by a passenger, or small pets in carriers, unless the item would reasonably cause damage, unsafe conditions, or unsanitary conditions in the vehicle.

B. A taxicab operator shall not refuse to transport a service animal, and shall not intentionally interfere with the use of a service animal, except as permitted by applicable law, including the Americans with Disabilities Act and the California Unruh Civil Rights Act.

C. Upon request, a taxicab operator shall provide reasonable assistance to a passenger by placing luggage, packages, and wheelchairs in and out of the taxicab, unless doing so would be unsafe for the operator or passenger. (ORD-26-0007 § 16, 2026)

5.80.430 Taxicab Operator Driver's License.

Authorized City Licensed Fleets and taxicab permittees shall ensure that each Taxicab Operator maintains a valid California driver's license issued by the California Department of Motor Vehicles, and shall provide proof in a manner approved by the Chief of Police. (ORD-26-0007 § 17, 2026)

5.80.440 Expedited Driver Activation.

The City may establish procedures, administered by the Police Department, for expedited review of applications for driver permits for taxicab operators, consistent with public safety and background investigation requirements. The City may also establish expedited vehicle inspection scheduling through the City Manager or designee. Nothing in this Section creates an entitlement to expedited processing or limits the City's discretion to require additional review. (ORD-26-0007 § 18, 2026)

CHAPTER 5.81 TOBACCO RETAIL PERMIT*

5.81.005 Purpose and intent.

It is the intent of the City Council, in enacting this Chapter, to encourage responsible tobacco

***Editor's note**—ORD-14-0003 § 1, adopted Mar. 4, 2014, amended Ch. 5.81 in its entirety to read as herein set out. Former Ch. 5.81 §§ 5.81.005—5.81.100, pertained to similar subject matter, and derived from ORD-08-0003 § 1, (part), 2008.

retailing and to discourage violations of tobacco-related laws, especially those which prohibit or discourage the sale or distribution of tobacco and nicotine products to minors. (ORD-14-0003 § 1, 2014)

5.81.010 Definitions.

The following words as used in this Chapter shall have the meanings set forth in this Section unless otherwise clearly apparent from the context:

A. "Characterizing flavor" means an artificial or naturally-occurring substance that has a distinguishable taste or aroma, or both, other than the taste or aroma of tobacco, imparted by a tobacco product or any byproduct produced by the tobacco product. Characterizing flavors include, but are not limited to, tastes or aromas relating to any fruit, chocolate, vanilla, honey, candy, cocoa, dessert, alcoholic beverage, menthol, mint, wintergreen, herb, or spice. A tobacco product shall not be determined to have a characterizing flavor solely because of the use of additives or flavorings or the provision of ingredient information. Rather, it is the presence of a distinguishable taste or aroma, or both, as described in the first sentence of this definition, that constitutes a characterizing flavor.

B. "Constituent" means any ingredient, substance, chemical, or compound, other than tobacco, water, or reconstituted tobacco sheet, that is added by the manufacturer to a tobacco product during the processing, manufacture, or packing of the tobacco product.

C. "Electronic cigarette" means an electronic and/or battery-operated device, the use of which may resemble smoking, which can be used to deliver an inhaled dose of nicotine or other substances in aerosolized or vaporized form to a person, including, but not limited to, any other device manufactured, distributed, marketed, or sold as an electronic cigarette, an electronic cigar, an electronic cigarillo, an electronic pipe, an electronic hookah, vapes, vaporizers, vape pens, or any other product name or descriptor that can be used to deliver nicotine in aerosolized or vaporized form to a person, including any component, part, or accessory of the device that is intended or reasonably expected to be used during its operation, whether or not sold separately. Electronic cigarette does not include any product that has been approved by the United States Food and Drug Administration for sale as a tobacco cessation product or for other therapeutic purposes where that product is marketed and sold solely for such approved use.

D. "Electronic cigarette paraphernalia" means any item designed, marketed, or reasonably expected to be used for the consumption, use, or preparation of an electronic cigarette, which includes, but is not limited to, cartridges, cartomizers, e-liquid, smoke juice, tips, atomizers, electronic cigarette batteries, electronic cigarette chargers, and any other item designed for the preparation, storing, charging, or use of electronic cigarettes.

E. "E-liquid" means any liquid, gel or other substance designed for use with an electronic cigarette, including but not limited to, e-juice, smoke juice or any other product name or descriptor. Excluded from this definition is any non-nicotine containing liquid, gel or other substance that contains cannabis in any form as its active ingredient.

F. "Flavored tobacco product" means any tobacco product that contains a constituent that imparts a characterizing flavor.

G. "Flavored shisha tobacco product" means any shisha tobacco product that contains a constituent that imparts a characterizing flavor.

H. "Hookah" means a type of waterpipe, used to smoke shisha or other tobacco products, with a long flexible tube for drawing aerosol through water. Components of a hookah may include heads, stems, bowls, and hoses.

I. "Hookah tobacco retailer" means a tobacco retailer that is engaged in the retail sale of shisha tobacco products, hookah, and hookah smoking accessories.

J. "Loose-leaf tobacco" consists of cut or shredded pipe tobacco, usually sold in pouches, excluding any tobacco product which, because of its appearance, type, packaging, or labeling, is

suitable for use and likely to be offered to, or purchased by, consumers as tobacco for making cigarettes, including roll-your-own cigarettes.

K. "Nominal cost" means the cost of any item imposed for the transfer from one person to another for less than the total of: (1) twenty-five percent (25%) of the fair market value of the item exclusive of taxes and government fees; plus (2) all taxes and government fees previously paid and all taxes and government fees still due on the item at the time of transfer.

L. "Nonsale distribution" means to give, furnish, or cause or allow to be given or furnished within the jurisdictional limits of the City, a tobacco product, tobacco paraphernalia, an electronic cigarette or electronic cigarette paraphernalia at no cost or at nominal cost to a person who is not a retailer.

M. "Premium cigar" means any cigar that is handmade, is not mass produced by use of mechanization, has a wrapper that is made entirely from whole tobacco leaf, and has a wholesale price of no less than twelve dollars ($12). A premium cigar does not have a filter, tip, or nontobacco mouthpiece and is capped by hand.

N. "Proprietor" means a person with an ownership or managerial interest in a business. An ownership interest shall be deemed to exist when a person has a ten percent (10%) or greater interest in the stock, assets, or income of a business other than the sole interest of security for debt. A managerial interest shall be deemed to exist when a person can or does have, or can or does share, ultimate control over the day-to-day operations of a business.

O. "Shisha tobacco product" means a tobacco product smoked or intended to be smoked in a hookah. "Shisha tobacco product" includes, and may be referred to as, hookah tobacco, waterpipe tobacco, massel, narghile, and argileh. "Shisha tobacco product" does not include electronic cigarettes.

P. "Self-service display" means the open display or storage of tobacco products, tobacco paraphernalia, electronic cigarettes or electronic cigarette paraphernalia in a manner that is physically accessible in any way to the general public without the assistance of a retailer or employee of a retailer and a direct person-to-person transfer between a retailer or employee of a retailer and any other person. A vending machine is a form of self-service display.

Q. "Tobacco paraphernalia" means any item designed, marketed, or reasonably expected to be used for the consumption, use, or preparation of a tobacco product, including, but not limited to, cigarette papers or wrappers, pipe holders of smoking materials of all types, cigarette rolling machines, hookahs, and any other item designed for the smoking or ingestion of tobacco products.

R. "Tobacco product" means the following:

1. Any product containing, made from, or derived from tobacco or nicotine, whether natural or synthetic, that is intended for human consumption, whether smoked, heated, chewed, absorbed, dissolved, inhaled, snorted, sniffed, vaped, or ingested by any other means, including, but not limited to, cigarettes, cigars, cigarillos, chewing tobacco, pipe tobacco, snuff, shisha; or

2. Any electronic cigarette; or

3. Any e-liquid; or

4. Any tobacco paraphernalia; or

5. Any electronic cigarette paraphernalia; or

6. "Tobacco product" does not include drugs, devices, or any combination of products authorized by the United States Food and Drug Administration, as those terms are defined in the Federal Food, Drug and Cosmetic Act.

S. "Tobacco retailer" means any person, in whole or in part, and all associated owners, employees, managers, or agents, who sells, offers for sale, or offers to exchange for any form of consideration, tobacco, tobacco products or tobacco paraphernalia; "tobacco retailing" shall mean engaging in any of these things. (ORD-21-0012 § 2, 2021; ORD-14-0003 § 1, 2014)

5.81.020 Permit—Required.

A. No person or proprietor shall act as a tobacco retailer without first obtaining and maintaining a valid permit for each location at which tobacco retailing is to occur or otherwise as pro-

vided in this Chapter. In addition to the criminal penalties attached to violations of this Section, tobacco retailing without a valid tobacco permit is a public nuisance.

B. No permit will be issued to authorize tobacco retailing at any place other than a fixed location; retailing by persons on foot and tobacco retailing from vehicles is prohibited.

C. Violations of this Chapter may constitute an infraction or a misdemeanor.

D. In addition to the above remedy, a violation of this Chapter may be remedied by a civil injunction or abatement action initiated by the City Attorney. (ORD-14-0003 § 1, 2014)

5.81.030 Permit—Application.

A. Any person or proprietor desiring a permit to engage in tobacco retailing as provided by this Chapter shall file an application with the City Manager, City Health Officer or designee.

B. An application for a tobacco retailer's permit shall be submitted in the name of each proprietor proposing to conduct retail tobacco sales and shall be signed by each proprietor or an authorized agent thereof.

C. It is the responsibility of each proprietor to be informed of the laws affecting the issuance of a tobacco retailer's permit.

D. The application for a tobacco retailing permit shall be filed on a form and shall contain such information as is requested by the City, including the following:

1. The name, mailing address and telephone number of the applicant, and the signature of the applicant or an authorized person thereof;

2. The business name, address and telephone number of each location for which a tobacco retailing permit is sought;

3. Photo identification of the person seeking the permit;

4. Proof of State Board of Equalization Tobacco License; and

5. Such other information as may be required by the City Manager or designee, consistent with the purpose of this Chapter, this Code and applicable law.

E. The City Manager or designee shall receive any fee required for the tobacco retail permit. The fee for such permit shall be determined by the City Council by resolution.

F. The City Manager, City Health Officer or designee shall issue the tobacco retail permit to the applicant unless: such application is incomplete or inaccurate, the application seeks authorization for tobacco retailing by a person or location for which a suspension is in effect under this Chapter, or the application seeks authorization for tobacco retailing that is unlawful under this Chapter, this Code or applicable law.

G. Tobacco products and tobacco paraphernalia offered for sale or exchange in violation of this Chapter are subject to seizure and forfeiture. Forfeited tobacco products and tobacco paraphernalia may be destroyed. (ORD-14-0003 § 1, 2014)

5.81.040 Permit—Issuance.

A. The tobacco retail permit shall clearly state the following on its face:

1. The legal owner(s) of the permitted premises;

2. Doing Business As (dba), if any;

3. The LBMC Chapter pursuant to which the permit was issued;

4. The business and mailing address of the owner of the permitted premises;

5. The date the permit was issued; and

6. The permit number.

B. The tobacco retail permit shall not be transferable or assignable from one (1) person or proprietor to another or from one (1) location to another location. If the information required in the permit application changes, a new tobacco retailer's permit is required before the business may continue to act as a tobacco retailer. For example, if a proprietor to whom a permit has been issued changes business location, that proprietor must apply for a new permit prior to acting as a tobacco retailer at the new location. Or if the business is sold, the new owner must apply for a permit for that location before acting as a tobacco retailer.

C. Each permittee shall prominently display the permit at each location where tobacco retailing occurs.

D. Possession of a valid tobacco retail permit under this Chapter does not entitle the permittee to engage in an activity which is otherwise prohibited by law. Violations of any tobacco-related laws shall constitute violations of the tobacco retail permit issued pursuant to this Chapter. In addition, a violation of California Penal Code Section 308 or any violation of the Long Beach Municipal Code, may subject the permit holder to suspension or revocation of their permit.

E. No person shall engage in tobacco retailing, if the person is below the minimum age allowed by State law for selling or possessing any tobacco product. (ORD-14-0003 § 1, 2014)

5.81.050 Permit—Fees.

An annual fee shall be charged for a tobacco retail permit. The fee shall be generally calculated so as to recover the cost of both the administration and enforcement of the tobacco retail permit program, including the cost of issuing the permits, renewing the permits, administering the retailer permit program, retailer education, retailer inspection and compliance checks, documentation of violations, adjudications, and convictions, and prosecution of violators. All fees are nonrefundable, except as required by law. Fees shall not be prorated. (ORD-14-0003 § 1, 2014)

5.81.060 Permit—Term and renewals.

All tobacco retail permits issued under this Chapter will be for a period not to exceed one (1) year in duration. The City Manager or his or her designee shall automatically renew such permits if the City Manager or designee determines that the permit holder complied with the provisions of this Chapter and applicable laws during the preceding permit term, and if the permit holder pays the annual fee required by this Chapter. All tobacco retailers must notify the City in writing if they discontinue selling tobacco products. (ORD-14-0003 § 1, 2014)

5.81.070 Permit—Retailing requirements and prohibitions.

A. Sale to minors prohibited. It shall be a violation of the permit to sell, give or furnish, or cause to be sold, given or furnished, a tobacco product or tobacco paraphernalia to a natural person under twenty-one (21) years of age in any place within the City.

B. Positive identification required. No retailer shall sell, give or furnish a tobacco product or tobacco paraphernalia to a natural person who appears to be under the age of twenty-seven (27) years without first examining identification to confirm that the recipient is at least twenty-one (21) years of age.

C. Self-service displays of tobacco products or tobacco paraphernalia are prohibited.

D. Nonsale distribution prohibited. No person, motivated by an economic or a business purpose, shall engage in the nonsale distribution of any tobacco product or tobacco paraphernalia in any public place.

E. It is a violation of the permit to violate any federal, State, or local laws relating to youth and tobacco products or youth and tobacco paraphernalia, including, for example, violations of: California Penal Code Section 308; the Stake Act (California Business and Professions Code Sections 22950 et seq.); any laws relating to self-service displays, signage, sale of bidis or single cigarettes, pack size, sampling, or mail order and internet sales; or any other law relating to youth and tobacco products. (ORD-23-0015 § 1, 2023; ORD-21-0012 § 3, 2021; ORD-14-0003 § 1, 2014)

5.81.080 Permit—Retailing of electronic cigarettes and electronic cigarette paraphernalia.

All permitting requirements and any other regulatory provisions of this Chapter relating to tobacco retailing shall apply the same to the retailing of electronic cigarettes and electronic cigarettes paraphernalia. (ORD-14-0003 § 1, 2014)

5.81.090 Permit—Violations and penalties.

In addition to the administrative penalties detailed pursuant to Section 9.65.060 of the Long

Beach Municipal Code, violation of or failure to comply with any provision of Chapter 5.81 may result in the following:

A. For the first violation in any five (5) year period, the tobacco retailer's tobacco retailing permit may be suspended for ten (10) business days;

B. For the second violation in any five (5) year period, the tobacco retailer's tobacco retailing permit may be suspended for thirty (30) business days;

C. For the third violation in any five (5) year period, the tobacco retailer's tobacco retailing permit may be revoked;

D. A tobacco retailer whose permit has been revoked may not apply for a new tobacco retailer's permit for a period of one hundred twenty (120) calendar days after the effective date of revocation.

E. Any decision to suspend or revoke a permit may be appealed pursuant to Section 5.06.010 of the Long Beach Municipal Code.

F. During any period of permit suspension or revocation, the tobacco retailer must remove from public view all tobacco products and tobacco-related advertising. (ORD-14-0003 § 1, 2014)

5.81.100 Severability.

If any section, subsection, subdivision, paragraph, sentence, clause or phrase of this Chapter, or its application to any person or circumstance, is for any reason held to be invalid or unenforceable, such invalidity or unenforceability shall not affect the validity or enforceability of the remaining sections, subsections, subdivisions, paragraphs, sentences, clauses or phrases of this Chapter, or its application to any other person or circumstance. The City of Long Beach declares that it would have adopted each section, subsection, subdivision, paragraph, sentence, clause or phrase hereof, irrespective of the fact that any one (1) or more sections, subsections, subdivisions, paragraphs, sentences, clauses or phrases hereof be declared invalid or unenforceable. (ORD-14-0003 § 1, 2014)

5.81.110 Administration and enforcement.

The provisions of this Chapter shall be administered by the Department of Health and Human Services, the Long Beach City Attorney and the Long Beach City Prosecutor offices. (ORD-14-0003 § 1, 2014)

CHAPTER 5.82 TOW OPERATIONS

5.82.010 Definitions.

The following words and phrases, as used in this Chapter, shall be construed to have the meanings respectively ascribed to them in this Section, unless the context requires a different meaning.

A. "Official Police tow" means a tow operation under contract to the City to respond to Police initiated requests for tow service.

B. "Tow operation" means any business which provides towing service for motor vehicles either on public highways or private property.

C. "Tow unit" means any motor vehicle, equipped to transport, carry or tow not more than two (2) motor vehicles, or used exclusively to render aid to other motor vehicles.

D. "Tow truck driver" means the driver of a tow unit, who is employed by a permitted tow operation business. (Ord. C-7423 § 29, 1996: Ord. C-6260 § 1 (part), 1986)

5.82.020 Towing operation permit—Required.

A. No person shall operate, or cause to be operated, nor shall any person employ, permit or allow another to operate or cause to be operated, a tow operation without a permit first having been approved by the Chief of Police.

B. A valid towing operation permit does not authorize the permittee to perform work for which a tow truck driver permit is required. (Ord. C-7423 § 29, 1996: Ord. C-6260 § 1 (part), 1986)

5.82.030 Towing operation permit—Application.

Every applicant for a permit required by this Chapter shall file with the Director of Financial Management a written application containing the name of the person, firm or corporation making the application, and if the operation is to be conducted under a fictitious name, the application

shall contain, in addition to the fictitious name, the name or names of each and all persons having an interest in the operation. The application shall specify the location by street and number of the premises in or upon which the operation is to be conducted. The application shall contain a statement that applicant has complied with all State laws and regulations affecting the operation and shall be made on forms to be furnished by the Director of Financial Management. (Ord. C-7423 § 29, 1996: Ord. C-6260 § 1 (part), 1986)

5.82.031 Permit nontransferable.

A. Any permit issued pursuant to this Chapter 5.82 shall not be transferred or assigned to another person for any purpose. Any change in ownership shall require a new permit. Regardless of any change in ownership, the permittee shall be required to notify the Director of Financial Management of any change in the business name.

The following shall be deemed a change of ownership:

1. For general partnership personnel, the addition or substitution of a new partner;

2. For a limited partnership, the addition or substitution of a new partner or the addition or substitution of a general partner not listed as a partner in the application for the permit previously approved;

3. For a corporation, more than fifty percent (50%) of the shares of stock is transferred to or acquired by persons other than those designated in the application for the permit previously approved. (Ord. C-7423 § 29, 1996)

5.82.035 Tow operation permit renewal.

Prior to renewal of a tow operation permit, the permittee shall biennially:

A. Submit to a background investigation;

B. Have all vehicles pass inspection as required by Section 5.82.060;

C. Provide evidence that permittee has maintained insurance, without lapse in coverage, as required by this Chapter; and

D. Submit a list of all employees currently employed as tow truck drivers. (Ord. C-7423 § 29, 1996)

5.82.040 Issuance and display of decal.

At the time of issuance of a permit under Section 5.82.020, the Director of Financial Management shall also issue one (1) identification decal for each approved tow unit proposed to be operated within the City under the permit. Approval shall be contingent upon the satisfactory compliance with the insurance and vehicle inspection requirements of this Chapter. The decal shall be maintained in the front right window of each approved vehicle. (Ord. C-7423 § 29, 1996: Ord. C-6260 § 1 (part), 1986)

5.82.050 Towing operation permit—Grounds for denial/Revocation/Suspension.

A. The Director of Financial Management may suspend, revoke, or deny an application for a permit to conduct towing operations on the following grounds:

1. The applicant has been convicted within the last seven (7) years of a felony or a crime involving fraud, theft, auto theft, car tampering, any similar crime, or any violation of State narcotic law;

2. The applicant has been convicted within the last five (5) years of driving while under the influence of intoxicants or narcotics or reckless driving;

3. The applicant has a driving record which shows a negligent operator point count as specified in Sections 12810 and 12810.5 of the California Vehicle Code. For the purposes of this paragraph, a plea or verdict of guilty, a finding of guilty by a court, a plea of nolo contendere, or a forfeiture of bail shall be deemed a conviction;

4. The applicant has had more than three (3) chargeable vehicle accidents within the last three (3) years or more than one (1) such accident within the last year;

5. The premises are not properly zoned for tow operations;

6. The applicant or any other person has violated any provision of this Code, State or Federal law arising out of and in connection with the practice and/or operations of the business for which the permit has been granted;

7. The applicant or any other person under his/her control or supervision has maintained a nuisance which was caused by any act performed in the exercise of any rights granted by the permit required under the provisions of this Code;

8. The applicant, his/her employee, agent or any person connected or associated with the licensee or permittee as partner, director, officer, stockholder or manager has knowingly made any false, misleading, or fraudulent statement of material fact in the application for the permit required under the provisions of this Code;

9. The applicant has failed to comply with any condition which may have been imposed as a condition for the issuance of the permit required under the provisions of this Code;

10. The applicant has failed to pay the permit fees that are provided for under the provisions of this Code when due;

11. The applicant has failed to maintain insurance as required by law to protect against loss or damage to the public;

12. Failure to maintain vehicles utilized in connection with the towing operation in a safe condition and in compliance with the California Vehicle Code.

B. Notwithstanding the provisions of this Section, in formulating a recommendation for approval or denial of a permit, the Chief of Police may, using his/her sound discretion, take into account any mitigating circumstances concerning any of the criminal convictions, moving violations

and accidents enumerated therein, in deciding whether the applicant for a tow operations permit is a competent person to operate a tow operation under the provisions of this Code. In utilizing his/her discretion, the Chief of Police shall take into account the following factors:

1. The severity of the crime in question;

2. The extent of the applicant's prior criminal history; and

3. The nature of and circumstances surrounding the crime in relation to the type of permit sought by the applicant. (Ord. C-7423 § 29, 1996: Ord. C-6260 § 1 (part), 1986)

5.82.055 Permit—Reapplication.

Whenever a permit has been revoked or an application for a permit has been denied, no other application for a permit shall be considered for a period of one (1) year from the date of such revocation or denial.

This applies to any person whose permit was revoked or whose application was denied who later becomes a director or officer of a corporation, profit or nonprofit, or a member of a partnership or a person owning or possessing any portion of the shares of a corporation which seeks to obtain a new permit. This shall also apply to a corporation, profit or nonprofit, whose permit was revoked or application denied, to any of its directors or officers or to any person who owned any portion of its shares, who attempts by way of a new corporation or by the use of their individual names or by becoming a member of a partnership or a director or officer or a person owning or possessing any portion of the shares in another corporation to obtain a new permit. Whenever any permit is suspended, the provisions of this Section shall apply to the permittee during the period of suspension. (Ord. C-7423 § 29, 1996)

5.82.060 Inspections.

Every person to whom a permit is issued pursuant to Section 5.82.020 shall, annually on or before the expiration date of said permit, be subject to inspection, in accordance with the requirements of law, to all aspects of the tow operation so permitted, including, but not limited to, those grounds for permit denial set forth in Section 5.82.050. The inspections may include inspection of all tow units operated under the permit, which inspections shall be conducted in accordance with rules and regulations as set forth in this Chapter. (Ord. C-7423 § 29, 1996: Ord. C-6260 § 1 (part), 1986)

5.82.070 Tow truck driver—Permit required.

A. No person shall operate or drive a tow unit without a permit from the Chief of Police.

B. No person shall be employed as a tow unit operator until such time as said person has received a written permit in the form of an identification card from the Chief of Police to act as a tow truck driver.

C. Every person directly engaged in the operation of a tow unit shall display to any Police Officer, upon request, an identification card issued by the Chief of Police identifying the bearer as a permitted tow truck driver. The identification card shall bear the name, physical description, business address and photograph of the permittee and the name and address of the garage employing the permittee.

D. The permittee shall return the identification card to the Chief of Police immediately upon suspension, revocation or termination of employment or permit expiration. (Ord. C-7423 § 29, 1996: Ord. C-6260 § 1 (part), 1986)

5.82.100 Tow truck driver permit—Grounds for denial/Revocation/Suspension.

A. The Chief of Police may revoke, suspend, or deny an application for a permit as a tow truck driver on the following grounds:

1. The applicant has been convicted within the last seven (7) years of a felony or a crime involving fraud, theft, auto theft, car tampering, any similar crime, or any violation of any State narcotic law;

2. The applicant has been convicted within the last five (5) years of driving while under the influence of intoxicants or narcotics or reckless driving; or

3. The applicant has a driving record which shows a negligent operator point count as specified in Sections 12810 and 12810.5 of the California Vehicle Code. For the purposes of this paragraph, a plea or verdict of guilty, a finding of guilty by a court, a plea of nolo contendere, or a forfeiture of bail is deemed a conviction; or

4. The applicant has had more than three (3) chargeable vehicle accidents within the last three (3) years or more than one (1) such accident within the last year; or

5. The applicant has knowingly made any false, misleading or fraudulent statement of material fact in the application for the permit required under the provisions of this Chapter; or

6. The applicant has violated any provision of this Code, State or Federal law arising out of or in connection with the practice and/or operation of the business for which the permit is sought, has had his/her California driver's license revoked or suspended for driving-related offenses in the prior eighteen (18) month period; or has been convicted of or pled guilty to three (3) or more moving offenses under the California Vehicle Code in the prior twelve (12) months;

7. The applicant has failed to comply with any condition which may have been imposed as a condition for the issuance of a permit under the provisions of this Code;

8. The applicant has failed to pay any fees that are provided for under the provisions of this Code when due.

B. Notwithstanding the provisions of this Section and Section 5.10.310, the Chief of Police may, using his/her sound discretion, take into account any mitigating circumstances concerning any of the criminal convictions, moving violations and accidents enumerated therein, in deciding whether the applicant for a tow truck driver's permit is a competent person to operate a tow truck under the provisions of this Code, and in issuing, revoking or suspending the tow truck driver's permit. In utilizing his/her discretion, the Chief of Police shall take into account the following factors:

1. The severity of the crime in question;

2. The extent of the applicant's prior criminal record;

3. The nature of and circumstances surrounding the crime in relation to the type of permit sought by the applicant. (Ord. C-7423 § 29, 1996: Ord. C-6260 § 1 (part), 1986)

5.82.120 Operating rules and regulations.

Every person permitted under Chapter 5.82 shall comply with the following rules and regulations:

A. Every tow operation shall display at the business location the permittee's business name, address, and phone number. The lettering shall be a minimum of two inches (2") in width and six inches (6") in height. It shall be clearly visible and legible from the street at all times and shall be illuminated at all times after dark.

B. Every permittee, employee or agent shall maintain all towed and impounded vehicles in his/her care and custody and all commercial vehicles used in connection with his/her business, within the confines of his/her storage facility and not upon the public streets, sidewalks, or other public property.

C. Every permittee, employee or agent who removes a vehicle from private property without the knowledge or consent of the vehicle owner shall cause a written inventory to be made describing the condition of the vehicle. Any damage to the vehicle shall be described in this inventory. In the event the permittee, employee or agent opened the vehicle, the inventory shall also include a complete listing of all property contained therein. A copy of this inventory shall be made available to the vehicle owner.

D. A permittee, employee or agent may enter a locked vehicle in order to remove it from legally posted private property; however, he/she shall be liable (under provisions of section 22658(d) of the Vehicle Code) for any and all damages caused to the vehicle.

E. Every permittee, employee or agent who removes a vehicle from private property without the vehicle owner's knowledge or consent shall cause the vehicle to be available for release:

1. During a minimum period of four (4) hours after impounding or towing the vehicle from pri-

vate property. If the vehicle is towed or impounded after the normal business hours of the permittee, no additional release charges may be charged by permittee until the minimum period of four (4) hours above mentioned has elapsed; and

2. At the set fee which shall not exceed the maximum amounts set by resolution of the City Council.

F. Every permittee, employee or agent impounding a vehicle from private property without the vehicle owner's knowledge or consent shall ascertain whether the vehicle has been previously reported stolen or whether it is wanted by law enforcement for any other reason. If so, the permittee shall notify the Police Department of the vehicle location and such other information as may be required. If the vehicle is impounded, the tow operation will notify the Police Department of the impound and the storage location within sixty (60) minutes after the vehicle has been removed from private property.

G. Every permittee, employee or agent responsible for impounding a vehicle from legally posted private property shall furnish to the owner of the vehicle, upon request, the name and legal address of the person, company or corporation authorizing the impound in order that the vehicle owner may effectively fulfill his/her legal recourse under section 22658(d) of the California Vehicle Code. The owner of a tow operation shall maintain for a period of one (1) year, and make available for inspection by the Chief of Police, the following information pertaining to private impounds:

1. The name and legal address of the person, company or corporation authorizing a private impound;

2. The date, time and location of a private impound;

3. Description including license plate number and state of registration and condition of the vehicle impounded.

H. When the owner of a vehicle arrives at the scene prior to his vehicle being removed and disputes the tow operator's authority to remove the vehicle, it shall be the duty of the tow operator to release the vehicle and promptly leave the location.

I. No possessory lien shall attach to the vehicle for any fees due to the permittee unless and until the vehicle has been removed from private property and is in transit.

J. Each permittee shall at all times keep the permit and a copy of these rules and regulations posted in a conspicuous place on the premises. In addition, each tow driver must have a copy of these rules in his/her possession when operating a tow unit to enable him to inform the vehicle owner of the tow operator's legal authority and responsibilities. These rules shall be presented to the vehicle owner in the event of a dispute regarding the removal of the vehicle.

K. Tow operations, drivers and employees shall conduct their business in an orderly, ethical, and businesslike manner, and use every means to obtain and keep the confidence of the motoring public.

L. No permittee shall display, either on the premises or on a tow unit operated by the permittee, employees or agents, an official Police tow insignia without written permission from the Chief of Police.

M. Every tow operation shall maintain insurance as prescribed in regulations issued by the City Manager pursuant to Section 2.84.040. (Ord. C-7934 § 13, 2004; Ord. C-7461 §§ 7, 8, 1997; Ord. C-7423 § 29, 1996: Ord. C-6325 §§ 24, 25, 26, 1986; Ord. C-6260 § 1 (part), 1986)

5.82.140 Storage location.

All vehicles impounded in the City shall be stored within the City. (Ord. C-7423 § 29, 1996: Ord. C-6260 § 1 (part), 1986)

CHAPTER 5.86 WATER TAXIS, CHARTER BOATS AND SIMILAR VESSELS

5.86.010 Definitions.

The words and phrases defined in this Section whenever used in this Chapter shall have the meanings indicated unless the context requires a different meaning:

A. "Charter boat" means any vessel used or offered for use under a contractual arrangement whether written or oral by which one (1) or more persons for cash, credit or any other form of valuable consideration use a vessel belonging to another.

B. "Dock structure" means a landing facility for boats and shall include floats, moorings, slips, wharfs, piers and quays.

C. "Cruise boat" means any vessel regardless of the manner of propulsion used or offered for use for the purpose of carrying passengers on the waterways of the City of Long Beach within a limited designated area or along a designated route.

D. "Gondola" means any lightweight, shallow draft vessel regardless of the manner of propulsion used or offered for use in connection with the business of carrying passengers for hire.

E. "Permittee" means any person to whom a permit is issued pursuant to the provisions of this Chapter.

F. "Person" means and includes any individual, partnership, corporation, organization and association.

G. "Vessel" means and includes boats and ships of all kinds regardless of the manner of propulsion and every structure designed to be, adapted to be, or capable of being navigated or operated on water from place to place for the transportation of merchandise, persons, or for any other purpose for hire, including, without limitation, charter boats, gondolas and water taxis.

H. "Water taxi" means any vessel regardless of the manner of propulsion used or offered for use in connection with the business of providing point-to-point public transportation on water within the limits of the City of Long Beach.

I. "Water areas of the City" means and includes Alamitos Bay (as defined in Section 16.08.020), the Downtown Shoreline Marina (as defined in Section 16.08.090), Marine Stadium East (as defined in Section 16.08.150), Marine Stadium West (as defined in Section 16.08.160), Shoreline Harbor Marina (as defined in Section 16.08.260), the mouth of the Los Angeles River (as defined in Section 16.12.070), the nearshore ocean area (as defined in Section 16.12.080), the protected ocean swimming area (as defined in Section 16.12.100) and all waterways contiguous with any of the above-described areas within the corporate limits of the City of Long Beach, but excluding therefrom the water areas in the harbor district of the City of Long Beach. (Ord. C-6260 § 1 (part), 1986)

5.86.020 Permit—Required.

Except as otherwise provided by law or pursuant to a lease, contract or permit heretofore specifically authorized by the City Council, no person shall operate or cause to be operated nor shall any person employ, permit or allow another to operate or cause to be operated for hire by the general public a charter boat, cruise boat, gondola, water taxi or other vessel over any route within the water areas of the City originating from or having a destination at a dock structure located within the water areas of the City without a permit first having been obtained as provided in this Chapter. The permit required by this Section shall be in addition to any other permit, license or certification required by federal, State or local law, rule, regulation or order, including, but not limited to this Code. (Ord. C-6260 § 1 (part), 1986)

5.86.030 Permit—Application.

A. Any person desiring a permit to operate a charter boat, cruise boat, gondola, water taxi or other vessel subject to the provisions of this Chapter shall file an application therefor with the City Council. Such application shall be verified by oath of the applicant, if an individual person, or by oath of an officer or partner of the applicant, if applicant is a corporation, partnership, organiza-

tion or association. The applicant shall set forth the name, age and address of the applicant, if an individual, or if a corporation, its name, date and place of incorporation, address of its principal place of business and the names of all its officers together with their respective addresses. If applicant is a partnership, organization or association, then the application shall set forth the names of the partners comprising the partnership, association or company, together with their respective ages and addresses. The application shall also state the trade name or style, if any, under which the applicant proposes to operate, full information pertaining to the extent, character and quality of the proposed operations, a full statement of the applicant's assets and liabilities, the manner in which the proposed operations are to be conducted, the type, model, capacity and condition of the vessels proposed to be operated, the location or locations from which applicant proposes to embark and disembark passengers, the location where applicant's vessel or vessels are to be permanently berthed, a copy of the lease or permit evidencing applicant's right to use the location or locations for the purpose of the proposed operations, copies of current valid permits, licenses or certificates issued by other governmental agencies having jurisdiction over the proposed operations, and such other or additional information as the City Council may require.

B. The City Council shall, upon receipt of the application, make full and complete inquiry into the facts set forth therein and shall either grant or deny a permit upon the proposed terms, or upon terms other than those proposed. The permit shall be for a specified number of vessels which may be increased only by action of the City Council, which action may, at the discretion of the City Council, be taken without the necessity of an additional hearing. Such permit may, at the pleasure of the City Council, be for a prescribed period or for an indefinite period; provided that, in either event, the permit shall contain a clause authorizing its revocation or suspension in accordance with the ordinances of the City either in effect at the date of granting the permit or thereafter adopted. When issued, the permit shall constitute evidence of compliance with the terms of this Chapter and shall authorize the permittee to operate the described vessels under the conditions therein specified; subject, however, to the requirements, obligations and limitations imposed by other applicable laws, ordinances, and orders of governmental agencies having jurisdiction and shall become effective only upon procurement of a business license and upon payment of the taxes required by the business licensing provisions of this Code. (Ord. C-6260 § 1 (part), 1986)

5.86.040 Permit—Hearings and findings.

No permit shall be granted under this Chapter, except after a hearing thereon conducted under and in accordance with such rules and regulations as may, from time to time, be prescribed therefor by the City Council, nor until the City Council has determined that the public convenience and necessity require the operation proposed by the applicant for the permit. The City Council, in determining whether or not such facts exist, shall take into consideration the public demand for the service, the adequacy or inadequacy of service upon waterborne traffic within the water areas of the City, the financial responsibility of the applicant, the character of the vessels proposed to be furnished, and any and all other facts which the City Council may deem relevant. Before granting any such permit, the City Council shall require the City Manager to present, either orally or in writing, a report, together with his opinion, as to the existence of public convenience and necessity for the proposed operation. The burden of establishing the existence of public convenience and necessity shall always be borne by the applicant for a permit, and no such permit shall be issued unless there has been an affirmative showing of the existence of such public convenience and necessity by the applicant. (Ord. C-6260 § 1 (part), 1986)

5.86.050 Permit—Contents.

A. Each permit shall specify the route to be traveled and the hours of operation. No permittee

under this Chapter shall operate or permit operation of any vessel in violation of this Chapter or of the provisions of a permit issued pursuant to this Chapter. (Ord. C-6260 § 1 (part), 1986)

5.86.060 Rates—Establishment.

Except for rates and fares allowed by order of the Public Utility Commission, no rates or fares shall be placed in effect, charged, demanded or collected by any person for the transportation of passengers as covered by this Chapter until the City Council, after a hearing upon its own motion, or upon application, or upon complaint, has found and determined the rate to be just, reasonable and nondiscriminatory, nor in any wise in violation of any provision contained in this Chapter or any provision of law, nor until the rate or fare to be placed in effect, charged, demanded or collected has been established and authorized by the City Council. In establishing and authorizing such rates or fares, the City Council shall take into account and give due and reasonable consideration to the cost of all comparable transportation services, including length of haul, any additional transportation service performed or to be performed, or of any accessorial service and the value of the facilities reasonably necessary to perform such transportation service.

Upon the granting of any permit under the provisions of this Chapter, a copy of the permit defining the rates shall be transmitted by the City Council to the City Manager, who shall, thereupon, be charged with the duty of enforcement of the rates and the applicable provisions of this Chapter. (Ord. C-6260 § 1 (part), 1986)

5.86.070 Permit—Suspension or revocation.

A. The City Council shall have the power to suspend or revoke any or all of the permits granted under the provisions of this Chapter when it has been determined that any of the provisions of this Chapter have been violated, or that any permittee has failed to comply with the provisions of such permit or the rules and regulations of the City Council pertaining to the operation and to the extent, character and quality of the service. Before revocation of the permit, the holder thereof shall be entitled to a hearing thereon before the City Council and shall be notified thereof.

B. Notice of hearing on the suspension or revocation shall be in writing and shall be served at least ten (10) days prior to the date of the hearing thereon, such service to be upon the permittee, or its manager or agent, and which notice shall state the grounds of complaint against the permittee and shall also state the time when and the place where the hearing will be held. In the event the permittee cannot be found, or service of the notice cannot be made in the manner provided in this Section, then a copy of the notice shall be mailed, postage fully prepaid, addressed to the permittee at its last known address at least ten (10) days prior to the date of the hearing. (Ord. C-6260 § 1 (part), 1986)

5.86.080 Authorized service only.

No person granted a permit under this Chapter shall conduct any operation or give any service other than the operations or the services authorized by the permit granted by the City Council in accordance with the provisions of this Chapter. (Ord. C-6260 § 1 (part), 1986)

5.86.090 Rates—Display.

Every vessel subject to the provisions of this Chapter at all times shall have displayed thereon in a location or locations and in a manner which has been approved by the City Manager or his designee, the rates to be charged for the authorized service, which rates shall always be visible to all passengers in the vessel. (Ord. C-6260 § 1 (part), 1986)

5.86.100 Rates—Alteration.

The City Council shall have power, upon a hearing upon its own motion, or upon application, or upon complaint, to investigate a single rate or fare, or the entire schedule of fares in effect, charged, demanded or collected for the transportation of passengers covered by this Chapter and to establish a new rate, fare or schedule of fares in lieu thereof. Nothing contained in this Section

shall be construed to empower the City Council to establish or authorize any rate or fare or any schedule of fares that will, by means of rebate, discount, allowance, premium or penalty, violate the rates or fares specified in the permit or the provisions contained in this Chapter or any applicable provision of law. (Ord. C-6260 § 1 (part), 1986)

5.86.110 Rates—Discrimination prohibited.

No permittee, or any agent or employee thereof, shall charge, collect, demand, receive, arrange, solicit or bargain for any amount of compensation other than the rates or fares established and authorized by the City Council. (Ord. C-6260 § 1 (part), 1986)

5.86.120 Insurance.

Every permittee shall, as a condition precedent to the commencement of operations pursuant to the permit and to the issuance of a business license therefor, obtain insurance as prescribed in the regulations issued by the City Manager pursuant to Section 2.84.040. (Ord. C-7934 § 14, 2004: Ord. C-6260 § 1 (part), 1986)

5.86.130 Inspection of vessels.

A. All vessels subject to the provisions of this Chapter shall, before being placed in service, be in a seaworthy condition, certified by the United States Coast Guard for carrying the number of passengers to be carried on the vessel. Such vessels shall at all times be kept in a clean and sanitary and seaworthy condition and in good state of repair and shall be subject to inspection by the City Council by and through the City Manager or his designee. Any vessel which becomes unsafe or unseaworthy either from the standpoint of its state of repair or its condition of obsolescence shall be retired from service upon order of the City Council, and no vessel which has been so retired shall be again operated in such service except with approval of the City Manager or his designee.

B. In the event the condition of any vessel, in the opinion of the City Manager or his designee, is so unclean, unsightly or unseaworthy as to be undesirable for use by the public, the City Manager or his designee may require the vessel to be immediately withdrawn from service and the vessel shall not be again placed in service until approved by the City Manager or his designee. (Ord. C-6260 § 1 (part), 1986)

CHAPTER 5.87 RESERVED*

CHAPTER 5.88 SMOKING LOUNGES

5.88.010 Purpose and intent.

The City Council finds that a regulatory process is necessary for reviewing, approving and enforcing related business and public health codes for smoking lounges as defined in this Chapter. It is the intent of this Chapter to establish regulatory provisions that allow the City or such persons as the City may designate to regulate smoking lounges operating in the City. The issuance of any smoking lounge permit under this Chapter shall not be deemed permission or authorization for a business to operate in any manner otherwise prohibited by local, State or federal law. (ORD-09-0038, § 3, 2009)

5.88.020 Definitions.

The following words as used in this Chapter shall have the meanings set forth in this Section unless otherwise clearly apparent from the context:

A. "Director of Financial Management" means the Director of Financial Management of the City of Long Beach, or his or her designee.

B. "Food" means any raw, cooked or processed edible article, substance, ice, beverage or ingredient, used or intended to be used in whole or in part as food, drink, liquor, confection or condiment for human consumption.

C. "Health Officer" means and includes the Health Officer of the City of Long Beach, his/her deputy, or other designated officer.

***Editor's note**—ORD-12-0004, § 3, adopted Feb. 14, 2012, repealed Ch. 5.87 §§ 5.87.010—5.87.140, entitled "Medical Marijuana Collectives", which derived from: ORD-10-0007, § 1, 2010; ORD-11-0002, § 1, 2011; and ORD-11-0013, § 1, 2011. See Chapter 5.89 for similar provisions.

D. "Smoke" or "smoking" means the carrying or holding of a lighted pipe, lighted cigar, hookah, or lighted cigarette of any kind, including, but not limited to, tobacco or any other weed or plant.

E. "Smoking lounge" means any business establishment that is dedicated to the smoking of tobacco products, including, but not limited to, establishments known variously as cigar lounges, hookah lounges or tobacco clubs. For purposes of this Chapter, "smoking lounge" means private smokers' lounge as defined in California Labor Code § 6404.5.

F. "Tobacco product" means any substance containing tobacco leaf, including, but not limited to, cigarettes, cigars, pipe tobacco, snuff, chewing tobacco, bidis (or beedies), hookah, or any other preparation of tobacco. (ORD-09-0038, § 3, 2009)

5.88.030 Compliance required.

No person shall operate any smoking lounge without first complying with the provisions of this Chapter regulating such businesses. Owners and operators of smoking lounges shall adequately inform their workers and employees of all smoking laws and regulations, and shall ensure that workers and employees comply with the provisions of this Chapter. Such owners and operators shall be held responsible for violations of their workers and employees. (ORD-09-0038, § 3, 2009)

5.88.040 Business license, tobacco retail permit and smoking lounge permit—Required.

No person shall engage in, operate, conduct, carry on or allow to be carried on, the business of a smoking lounge in the City without first having obtained, for each separate smoking lounge or place of business where indoor smoking is to occur, a business license as prescribed by the provisions of Chapter 3.80, a tobacco retail permit as provided in Chapter 5.81, and a smoking lounge permit as provided in this Chapter. (ORD-09-0038, § 3, 2009)

5.88.050 Smoking lounge permit application process.

A. Any person desiring a permit required by this Chapter to carry on or conduct the business of a smoking lounge in the City shall, for each separate smoking lounge or place of business where indoor smoking is to occur, complete and file an application on forms provided by the Director of Financial Management. Such application forms shall require information including the name, address and telephone number of the applicant, the business name ("doing business as" (dba), if any) and location of the smoking lounge or place of business where indoor smoking is to occur, a brief description of the nature of the business, products to be sold, and such other and further information deemed pertinent by the Director of Financial Management, the Health Officer, or any concerned City department, to ensure compliance with the provisions of this Chapter and other applicable laws.

1. The person whose signature appears on the application shall attest that they are a duly authorized representative of the applicant and that the information contained in the application is true and correct.

2. The application shall be filed under penalty of perjury. False statements therein will constitute grounds for denial, or revocation as applicable.

3. An incomplete application shall not be accepted for processing.

4. A nonrefundable investigation fee, as adopted by the City Council by resolution, shall be paid to the City at the time the application is filed.

B. On receipt of a completed smoking lounge permit application, the Director of Financial Management shall refer the application to all concerned City departments for investigation. Such departments shall file a report providing recommendations regarding the approval or denial of the permit with the Director of Financial Management within sixty (60) calendar days after the completed application is filed, except where circumstances beyond the control of the City justifiably delay such response. (ORD-09-0038, § 3, 2009)

5.88.060 Smoking lounge permit—Issuance.

A. The Director of Financial Management shall make or cause to be made an investigation of

the place of business and the manner in which the smoking lounge is to be conducted, and if it is found that all provisions of this Code and all applicable laws have been and will be complied with, the Director of Financial Management shall issue the smoking lounge permit; otherwise, the application for a smoking lounge permit shall be denied.

B. Such smoking lounge permits shall be good for one (1) year and shall be automatically renewed every year, provided that the Director of Financial Management determines that the permit holder has complied with the provisions of this Chapter and applicable laws during the preceding permit term.

C. Permittees must notify the Director of Financial Management in writing if structural modifications are planned to be made to a smoking lounge for which a permit has been issued under this Chapter. Prior to making any structural modifications to a smoking lounge, in whole or in part, the permittee shall submit plans and specifications to the Director of Financial Management for approval. The Director of Financial Management shall refer the plans and specifications to all concerned City departments for review and inspection, as appropriate. Such departments shall file a report providing recommendations regarding the approval or denial of the structural modifications with the Director of Financial Management within thirty (30) calendar days after the plans and specifications are submitted, except where circumstances beyond the control of the City justifiably delay such response. (ORD-11-0008, § 2, 2011; ORD-09-0038, § 3, 2009)

5.88.065 Smoking lounge permit—Limit on number of permits and nontransferable.

A. The maximum number of smoking lounge permits issued by the City and in effect at any given time shall not exceed eight (8) permits.

B. A smoking lounge permit issued pursuant to this chapter shall become null and void upon the cessation of the business operations and/or the relocation of the business to a different property. All smoking lounge permit holders must notify the Director of Financial Management in writing of any discontinuance of business operations, change in ownership, change in business location, or change in the business name.

C. Any smoking lounge permit issued pursuant to this chapter shall not be transferable or assignable from one owner or operator to another, or from one location to another location. If the information required in the permit application changes, a new smoking lounge permit is required before the business may continue to operate as a smoking lounge. For example, if an owner or operator to whom a permit has been issued changes business location, that owner or operator must apply for a new permit prior to operating a smoking lounge at the new location. Or if the business is sold or otherwise has a change in ownership, the new owner must apply for a new permit for that location before the business may operate as a smoking lounge. (ORD-13-0017, § 2, 2013; ORD-11-0008, § 3, 2011)

5.88.070 Smoking lounge permit—Fees.

Every applicant for a smoking lounge permit under this Chapter shall pay to the City, before a permit is issued, an annual fee as adopted by the City Council by resolution. All fees are nonrefundable; therefore, in the event that any permit issued pursuant to this Chapter is suspended or revoked, or because the permittee no longer owns or operates the smoking lounge, no portion of a permit fee paid by such permittee shall be refunded. (ORD-09-0038, § 3, 2009)

5.88.080 Inspections.

A. The Director of Financial Management, the Health Officer and representatives of concerned City departments are empowered to enter any smoking lounge, or other place of business where indoor smoking occurs or is suspected of occurring, at any time for the purpose of inspection, including the taking of photographs, samples or other evidence that is plainly visible, and to enforce any of the provisions of this Chapter, or of any applicable law, rule or regulation governing such places in the City.

B. No person shall refuse to permit or allow the Director of Financial Management, the Health Officer, any authorized inspector, or any representatives of concerned City departments, to enter or inspect or examine any portion of any smoking lounge or other place of business where indoor smoking occurs. No person shall interfere with, hinder, or harass, in any manner any City representative in the inspection or the examination of such smoking lounge or other place of business where indoor smoking occurs. (ORD-09-0038, § 3, 2009)

5.88.090 Smoking lounge permit; suspension; revocation; denial; hearing.

A. If a City department determines that the applicant does not satisfy applicable requirements of this Chapter, the Director of Financial Management shall deny said permit application in accordance with the provisions set forth in Subsection 5.06.020.A, of this Code.

B. If a City department determines that the permittee failed to comply with any provision of this Chapter, or with any other provision or requirement of law, the Director of Financial Management shall revoke or suspend the smoking lounge permit in accordance with the provisions set forth in Subsection 5.06.020.A, of this Code.

C. The Director of Financial Management shall notify the applicant of a rejected application, or the permittee of the permit revocation or suspension by dated written notice. Said notice shall advise the applicant or permittee of the right to appeal the decision to the City Council. The request for appeal shall be in writing, shall set forth the specific ground(s) on which it is based and shall be submitted to the Director of Financial Management within ten (10) calendar days from the date the written notice was mailed along with an appeal deposit in an amount determined by the City Council by resolution.

D. The City Council shall conduct a hearing on the appeal or refer the matter to a hearing officer, pursuant to Chapter 2.93 of this Code, within thirty (30) business days from the date the completed request for appeal was received by the Director of Financial Management, except where good cause exists to extend this period. The appellant shall be given at least ten (10) business days' written notice of such hearing. The hearing and rules of evidence shall be conducted pursuant to Chapter 2.93 of this Code. The determination of the City Council on the appeal shall be final.

E. Whenever a smoking lounge permit application has been denied or a smoking lounge permit has been revoked, no other such permit application shall be considered for a period of one (1) year from either the date notice of the denial, or revocation was mailed or the date of the final decision of the City Council, whichever is later.

F. Notwithstanding any other provisions in this Chapter, in the event that a tobacco retail permit is suspended, denied or revoked, the smoking lounge permit shall at the same time be suspended, denied or revoked. (ORD-09-0038, § 3, 2009)

5.88.100 License and permits display.

City business license, tobacco retail permit and smoking lounge permit shall be prominently displayed in each smoking lounge. (ORD-09-0038, § 3, 2009)

5.88.110 Health warning signage.

A. A "Proposition 65" warning sign regarding exposure to tobacco smoke, supplied by the Health and Human Services Department, must be posted at each entrance to a smoking lounge.

B. A smoking hazard sign, supplied by the Health and Human Services Department, must be posted at each entrance to a smoking lounge. (ORD-09-0038, § 3, 2009)

5.88.120 Age restriction and signage.

A. No persons under eighteen (18) years of age shall be permitted within the smoking lounge at any time.

B. A warning sign must be posted at each entrance to a smoking lounge, and conspicuously posted in a place that can be clearly seen by the public, stating that persons under eighteen (18)

years of age are prohibited. (ORD-09-0038, § 3, 2009)

5.88.130 Sale of food and beverages prohibited.

No person shall receive for sale, sell, offer for sale, keep for sale, have in such person's possession with intent to sell, any food or beverages in the smoking lounge. All places where food or beverages are kept or suspected of being kept shall be subject at all times to inspection by the Health Officer, other officers or City representative appointed for that purpose, and such persons are authorized to enter and inspect all such places. (ORD-09-0038, § 3, 2009)

5.88.140 Ventilation requirement.

The permittee of a smoking lounge permit shall minimize the intrusion of drifting tobacco smoke and other adverse impacts on businesses in the vicinity of the smoking lounge and areas where smoking is not permitted. Exhaust air from the smoking lounge shall be exhausted directly to the outside by an exhaust fan and shall not be recirculated to other parts of the building. The ventilation and exhaust system shall conform to the latest edition of the California Mechanical Code and California Building Energy Efficiency Standards for Residential and Nonresidential Buildings, as adopted and amended by Chapter 18.36 of the Long Beach Municipal Code, or as otherwise required by applicable State or federal laws. (ORD-09-0038, § 3, 2009)

5.88.150 Application to existing businesses.

Any business establishment operating as a smoking lounge under an existing business license on the effective date of this Chapter shall be brought into full compliance with the provisions of this Chapter, not later than ninety (90) days following the effective date of this Chapter. (ORD-09-0038, § 3, 2009)

5.88.160 Severability.

If any section, subsection, subdivision, paragraph, sentence, clause or phrase of this Chapter, or its application to any person or circumstance, is for any reason held to be invalid or unenforceable, such invalidity or unenforceability shall not affect the validity of enforceability of the remaining sections, subsections, subdivisions, paragraphs, sentences, clauses or phrases of this Chapter, or its application to any other person or circumstance. The City of Long Beach declares that it would have adopted each section, subsection, subdivision, paragraph, sentence, clause or phrase hereof, irrespective of the fact that any one (1) or more sections, subsections, subdivisions paragraphs, sentences, clauses or phrases hereof be declared invalid or unenforceable. (ORD-09-0038, § 3, 2009)

5.88.170 Administration and enforcement.

Any violation of the terms and conditions of a smoking lounge permit, of this Chapter, or of applicable local, state or federal regulations and laws shall be grounds for permit denial, suspension or revocation. Each day a violation exists constitutes a separate and distinct offense. Suspension or revocation of the permit shall be governed by the provisions of this Chapter, and criminal penalties may be assessed under Chapter 1.32 of this Code. (ORD-09-0038, § 3, 2009)

CHAPTER 5.89 RESERVED*

CHAPTER 5.90 MEDICAL MARIJUANA BUSINESSES

5.90.010 Purpose and intent.

The purpose of this Chapter is to regulate and restrict marijuana businesses, cultivation and other commercial cannabis activities to protect the neighborhoods, public health, safety, and welfare of the residents and patients of the City of Long Beach. (Measure MM § 4, 11-8-2016)

5.90.020 Application and definitions.

This Chapter applies to persons or entities that seek to engage in or are engaging in commer-

***Editor's note—**Measure MM § 3, adopted Nov. 8, 2016, repealed Ch. 5.89 §§ 5.89.010—5.89.070 entitled "Medical Marijuana Dispensaries", which derived from ORD-12-0004 § 2, adopted 2012. See Ch. 5.90 for similar provisions.

cial cannabis activity. For purposes of this Chapter, "commercial cannabis activity" is defined by California Business and Professions Code section 19300.5(k) and includes the cultivation, possession, manufacture, processing, storing, laboratory testing, labeling, transporting, distribution, or sale of medical cannabis or a medical cannabis product. The definitions set forth in California Business & Professions Code section 19300.5 and Health and Safety Code Sections 11362 et seq. shall apply to this Chapter and are hereby incorporated by reference. The following definitions shall apply to this Chapter:

"Applicant" means the following: (1) The owner or owners of a proposed Medical Marijuana Business, including all persons or entities having an ownership interest greater than ten (10) percent in the business; (2) If the owner is an entity, "owner" includes within the entity each person participating in the direction, control, or management of, or having an ownership interest greater than ten percent (10%) in the proposed business; (3) If the Applicant is a publicly traded company, "owner" means the chief executive officer or any person or entity with an aggregate ownership interest greater than ten percent (10%).

"Bona Fide Labor Organization" means a labor union that represents or is actively seeking to represent medical marijuana workers in the City of Long Beach.

"Business License Permit" shall mean both the business license issued by the City Manager for Business Tax purposes pursuant to Chapter 3.80 of this Code and the business permit issued by the City Manager pursuant to Title 5 of this Code, to a Medical Marijuana Business.

"Business Manager" means the individual designated by the owner of the Medical Marijuana Business as the person responsible for operations of the business in the absence of the owner from the business property. Business manager shall include any person with managerial authority in the business.

"Chief of Police" shall mean the Chief of the Long Beach Police Department or his or her designee.

"City Manager" shall mean the City of Long Beach's City Manager, or his or her designee.

The "Cultivation Canopy" shall be the square footage of the aggregate area of vegetative growth of live marijuana plants on the premises.

"Labor peace agreement" shall have the same meaning as in the California Business and Professions Code, Section 19300.5(v).

"Management Employee" shall mean an employee of a Medical Marijuana Business responsible for the establishment, organization, registration, supervision, or oversight of the operation of the business, including but not limited to, employees who perform the functions of president, vice president, director, operating officer, financial officer, secretary, treasurer, or manager of the business.

"Marijuana" shall have the same definition provided in Health and Safety Code § 11018 (as may be amended). Without limiting the definition, "Marijuana" also means "Cannabis".

"Medical Marijuana Business" means: (1) Any entity or association of four (4) or more individuals that cultivates, produces, manufactures, sells, distributes, possesses, transports, delivers, or makes available medical marijuana to qualified patients and their designated primary caregivers who associate at a particular location or Property within the boundaries of the City of Long Beach to collectively cultivate or distribute medical marijuana in accordance with California Health and Safety Code § 11362.5 et seq., the State MMRSA, or this Chapter. For purposes of this Chapter, the term medical marijuana cooperative, collective, facility, or dispensary shall have the same meaning as Medical Marijuana Business. Medical Marijuana Business includes, but is not limited to, dispensary storefront locations, cultivation facilities, and medical marijuana product manufacturers; (2) Any person that cultivates, produces, sells, distributes, possesses, transports or delivers more than six (6) mature marijuana plants or twelve (12) immature marijuana plants, and eight (8) ounces of a useable form of marijuana for medical use, pursuant to California Health and Safety Code § 11362.5 et seq.; (3) The term Medical Marijuana

Business shall not include the private possession, production, or medical use of no more than six (6) mature marijuana plants or twelve (12) immature marijuana plants, and eight (8) ounces of a useable form of marijuana by a patient or caregiver.

"Medical marijuana-infused product" means a marijuana infused, edible, ingestible, or inhalable product, including but not limited to topical solutions and vaporizers.

"Park" or "Public Park" shall mean publicly owned natural or open areas set aside for active public use for recreational, cultural or community service activities.

"Priority Group 1 Applicant" and "Priority Group 2 Applicant" shall mean the entity that filed the original application under former Chapter 5.87. The Management Employees or owner(s) (as defined herein) represented on the Chapter 5.87 application are not required to participate in any application submitted pursuant to this Chapter.

"Property" shall mean the location or locations within the City of Long Beach at which a Medical Marijuana Business is operated.

"Regulatory implementation of the MMRSA" shall mean the date the State first accepts applications for licenses for Medical Marijuana Businesses pursuant to the MMRSA for the applicable license.

"State license," or "registration" means a State license issued by the State of California pursuant to the State's MMRSA for the purpose of engaging in any form of commercial cannabis activity. (Measure MM § 4, 11-8-2016)

5.90.030 Medical Marijuana Business License Permit.

Except as otherwise set forth in this Chapter, it shall be unlawful for any person or entity to operate, in or upon any property, a Medical Marijuana Business without first obtaining all required State licenses and a business license or permits issued by the City. Each State license type available in the MMRSA is eligible to apply for a City Business License Permit. Medical Marijuana Business shall be considered a personal service type business in the City of Long Beach (as defined in section 21.15.2020) with respect to issuing a Business License Permit and setting application and license fees. Until the regulatory implementation of the MMRSA, the Medical Marijuana Business license permits shall be issued without regard to the fact the State license has not been issued. Failure to timely obtain required State licenses or permits shall be grounds for suspension or revocation of any permit or license issued by the City. Upon the regulatory implementation of the MMRSA, unless otherwise set forth in this Chapter, no person shall engage in commercial cannabis activity or in the activities of a Medical Marijuana Business without possessing all applicable State licenses and all applicable City permits and licenses. Revocation of a State license shall constitute grounds for the City to suspend or revoke any permit or license issued by the City.

A Medical Marijuana Business that is operating in compliance with this Chapter and other State and local laws on or before January 1, 2018, may continue its operations until its application for State licensure is approved or denied by the licensing authority.

A Medical Marijuana Business must at all times maintain liability insurance having aggregate policy limits in an amount not less than one million dollars ($1,000,000.00).

The City may impose an annual business license fee no greater than one hundred fifty percent (150%) of the average business license fee the city charges for non-cannabis related personal service business. Failure to timely pay the annual business license fee shall be grounds for suspension or revocation of the business license. Applicants that previously paid an application fee pursuant to former Chapter 5.87 may, at the applicant's discretion, have any un-refunded fee applied as credit against any fees applicable under this Section. All Medical Marijuana Businesses shall be subject to an annual regulatory inspection by the City to insure compliance with all of the applicable provisions of this Chapter and to confirm compliance with the business license permit issued by the City.

It shall be unlawful for the owner of a building to allow the use of any portion of a building by a Medical Marijuana Business unless the tenant has a valid business license permit, or has applied for and not been denied, a business license permit. Each owner of a building whose tenant is a Medical Marijuana Business License Permit applicant shall execute an acknowledgement that the Applicant has the owner's permission and consent to operate a Medical Marijuana Business at the subject property.

Each Medical Marijuana Business shall designate a Community Relations Liaison (hereinafter, the "Liaison"), who shall be at least twenty-one (21) years of age; and shall provide the Liaison's name to the City Manager. The Liaison shall receive all complaints received by the City Manager regarding the Medical Marijuana Dispensary, and make good faith attempts to promptly resolve all complaints. To address community complaints and concerns, the name and telephone number for the Liaison shall be made publicly available. Each Medical Marijuana Business Liaison is required to respond by phone or email within three (3) business days of contact by a city official concerning the Medical Marijuana Business. The name and contact information for Liaison of the medical marijuana business shall be conspicuously posted on the main entry doors to the business.

No pesticides or insecticides prohibited by federal, State, or local law for fertilization or production of edible produce may be used on any marijuana cultivated, produced or distributed by a Medical Marijuana Business. A Medical Marijuana Business shall comply with all applicable federal, State, and local laws regarding use and disposal of pesticides and fertilizers.

No Medical Marijuana Business may be operated in an area zoned exclusively for residential use. No Medical Marijuana Dispensary may be located within a six hundred (600) foot radius of a public or private school (as defined in Health and Safety Code Section 11362.768(h)), or within a six hundred (600) foot radius of a day care center, playground, community center, or library, or within one thousand (1,000) feet of another dispensary. No Medical Marijuana Business may be located within a one thousand (1,000) foot radius of a public or private school (as defined in Health and Safety Code § 11362.768(h)) or public beach, or within a six hundred foot (600') radius of a public park or public library, with the exception of dispensaries which must follow the location requirements above. The distances specified in this subdivision shall be determined by the horizontal distance measured in a straight line from the property line of the school, park or library to the closest property line of the lot on which the Medical Marijuana Business is located, without regard to intervening structures. (ORD-22-0015 § 1, 2022; Measure MM § 4, 11-8-2016)

5.90.040 Security.

Every Medical Marijuana Business shall implement sufficient security measures to both deter and prevent unauthorized entrance into areas containing medical cannabis or medical cannabis products and theft of medical cannabis or medical cannabis products. These security measures, as appropriate, shall include, but not be limited to, the following: (a) Preventing individuals from remaining on the premises if they are not engaging in activity expressly related to the operations of the business; (b) Establishing limited access areas accessible only to authorized personnel; (c) Storing all finished medical cannabis and medical cannabis products in a secured and locked room, safe, or vault, and in a manner as to prevent diversion, theft, and loss, except for limited amounts of cannabis used for display purposes, samples, or immediate sale.

Each Medical Marijuana Business shall install and maintain a fully operational digital video surveillance and camera recording system that monitors no less than the front and rear of the Property, all points of ingress and egress at the business, all points of sale within the business, all areas within the business where medical marijuana products are displayed for sale, and all limited access areas within the facility. The video and surveillance system shall, at a minimum, meet the following requirements: (a) Capture a full view of the

public rights-of-way and any parking lot under the control of the medical marijuana business; (b) Be of adequate quality, color rendition and resolution to allow the ready identification of any individual committing a crime anywhere on or adjacent to the exterior of the property; (c) Record and maintain video for a minimum of thirty (30) days. Video surveillance and recording records shall be held in confidence by all employees and for legitimate law enforcement activity to resolve criminal activity; (d) Licensees are responsible for ensuring that all video or surveillance equipment is properly functioning and maintained, so that playback quality is suitable for viewing and the equipment is capturing the identity of all individuals and activities in the monitored areas; (e) At each point of sale location, camera coverage must enable recording of the customer(s) and employee's facial features with sufficient clarity to determine identity; (f) The system shall be capable of recording all monitored areas in any lighting conditions and must be housed in a designated, locked, and secured room or other enclosure with access limited to authorized employees. Licensees must keep a current list of all authorized employees and service personnel who have access to the surveillance system and/or room on the licensed premises; (g) A sign shall be posted in a conspicuous place near each monitored location on the interior or exterior of the premises which shall be not less than twelve inches (12") wide and twelve inches (12") long, composed of letters not less than one inch (1") in height, stating "All Activities Monitored by Video Camera" or "These Premises are Being Digitally Recorded", or otherwise advising all persons entering the premises that a video surveillance and camera recording system is in operation at the facility and recording all activity as provided in this Section; (h) All exterior camera views must be continuously recorded twenty-four (24) hours a day and all interior cameras views shall be recorded during all hours that the facility is open for business.

The medical marijuana business shall install and use a safe for storage of any processed marijuana and cash on the property when the business is closed to the public. The safe shall be incorporated into the building structure or securely attached thereto. For medical marijuana infused products that must be kept refrigerated or frozen, the business shall lock the refrigerated container or freezer in place of using a safe so long as the container is affixed to the building structure.

The medical marijuana business shall install and use a fire and burglar alarm system that is monitored by a company that is staffed twenty-four hours (24) a day, seven (7) days a week. The security plan submitted to the City shall identify the company monitoring the alarm, including contact information, and the City shall be updated within seventy-two (72) hours of any change of monitoring company. A medical marijuana business engaged in retail sales shall retain and maintain a security guard or patrol, licensed by the State of California, generally located at an indoor guard station, during all hours of operation. (Measure MM § 4, 11-8-2016)

5.90.050 Persons prohibited as permittees and business managers.

It shall be unlawful for any of the following persons to have an ownership interest or a managerial responsibility in a Medical Marijuana Business, and no license or permit may be issued to or held by, and no Medical Marijuana Business shall be managed by: (a) Any person until all required fees have been paid; or (b) Any person who has been convicted within the previous ten (10) years of any violent or serious felony as specified in Sections 667.5 and 1192.7 of the Penal Code or any felony conviction involving fraud, deceit or embezzlement or who is currently on parole or probation for the sale or distribution of a controlled substance; or (c) Any person who is under twenty-one (21) years of age; or (d) Any person who operates or manages a Medical Marijuana Business contrary to the provisions of this Chapter, or conditions imposed on land use or license approvals, or contrary to the terms of the plans submitted with the permit application, or amended as permitted by this Chapter; or (e) A licensed physician making patient recommendations; or (f)

A person licensed and permitted to operate pursuant to this Chapter who, while lawfully operating, or who, at the time of application, has failed to remedy an outstanding delinquency for City taxes or fees owed, or an outstanding delinquent judgment owed to the City; or (g) A sheriff, deputy, police officer, or prosecuting officer, or an officer or employee of the State or City of Long Beach; or (h) Applicants or entities (including management Employees) that have a previous record of violating federal or state laws relating to workplace safety, wages and compensation, employee discrimination, or union activity. (Measure MM § 4, 11-8-2016)

5.90.060 Medical Marijuana Dispensary Operating Conditions and Restrictions.

Every person and entity operating as a Medical Marijuana Dispensary in the City shall comply with the following operating conditions and restrictions. No Medical Marijuana Dispensary may operate within the City of Long Beach without meeting the following conditions:

A Medical Marijuana Dispensary shall not be located within a one thousand foot (1,000') radius of any other Medical Marijuana Dispensary.

A sign shall be posted in a conspicuous location inside each Property advising: (a) It is a violation of State Law to engage in the sale of marijuana or the diversion of marijuana for non-medical purposes; (b) The use of marijuana may impair a person's ability to drive a motor vehicle or operate heavy machinery; (c) Loitering at the location of a Medical Marijuana Business for an illegal purpose is prohibited by Penal Code § 647(h); (d) This Medical Marijuana Business is licensed in accordance with the laws of the City of Long Beach; (e) Your membership will be terminated if you engage in the illegal sale or diversion of Medical Marijuana.

Representative samples of Medical Marijuana distributed by the Business shall be analyzed by an independent laboratory to ensure that they are free of harmful pesticides and other contaminants regulated under local, state or federal law.

No person, other than a patient, caregiver, licensee, employee, or a contractor shall be in the medical marijuana dispensary room. No patient shall be allowed entry into the medical marijuana dispensary room without showing a valid State issued picture Driver's License or Identification. A Medical Marijuana Dispensary may distribute, dispense, deliver or transport medical marijuana only in accordance with this Chapter and State law.

The number of licensed and permitted Medical Marijuana Dispensaries shall be limited to not less than one (1) Medical Marijuana Dispensary business for every eighteen thousand (18,000) residents in the City of Long Beach or not more than one (1) Medical Marijuana Dispensary business for every fifteen thousand (15,000) residents in the City of Long Beach. The population of the City shall be based on the official census population estimate as periodically updated by the US Department of Commerce, United States Census Bureau. The City Council may increase the number of licensed and permitted medical marijuana dispensaries pursuant to this Chapter but may not reduce them below the thresholds set forth herein. The City Manager shall issue the maximum number of licenses permitted by this Section unless otherwise directed by the City Council. The total number of permitted Medical Marijuana Dispensaries in the City is set at 40, with eight (8) dispensaries designated to be owned by cannabis equity businesses pursuant to Section 5.90.310. The eight (8) Medical Marijuana Dispensaries owned by cannabis equity businesses shall be selected via a Request for Proposals (RFP) process as outlined in regulations set forth by the City Manager, or their designee, and shall not be selected using the procedures outlined in Sections 5.90.070 and 5.90.080 of this Chapter.

The City will not accept applications from any of the thirty two (32) existing cannabis dispensary businesses to change their business location for one hundred eighty (180) days from the date the City awards the eight (8) Equity Dispensary Businesses to move forward in the licensing process, or until all Equity Dispensary Businesses have pro-

vided the complete, notarized Property Owner Authorization for the business premises in the business license application, whichever occurs sooner. (ORD-22-0015 § 2, 2022; Measure MM § 4, 11-8-2016)

5.90.070 Priority of medical marijuana dispensaries.

A Medical Marijuana Dispensary Applicant that: (1) was successful in the September 2010 permit lottery conducted by the City of Long Beach under former Chapter 5.87; (2) was allowed by the City Council to operate after February 14, 2012 pursuant to section 5.89.055 of this Chapter; and (3) no longer has the right to occupy the same location that it had occupied on February 14, 2012, shall have the priority right to apply for a Medical Marijuana Dispensary Business License Permit. The City Manager shall verify, within two business days of a request, whether the Applicant qualifies for such priority and, if so, shall issue a letter to potential landlords stating that the Applicant has priority for a license to operate a Medical Marijuana Dispensary in the City of Long Beach.

Medical Marijuana Dispensary Applicants that: (1) were successful in the September 2010 permit lottery conducted by the City of Long Beach under former Chapter 5.87; and (2) were allowed by the City Council to operate after February 14, 2012 pursuant to former section 5.89.055 of this Chapter; and (3) have the right to occupy the same location(s) that it had occupied on February 14, 2012 ("Priority Group 1" applicants), and Applicants issued a landlord letter pursuant to this Section ("Priority Group 2" applicants), who timely submit qualifying applications, shall be given priority over all other applicants for License Permit approval.

Applicants entitled to a license permit or to priority under this subsection shall submit an application to the City Manager no later than six months after the City first accepts applications for Medical Marijuana Dispensary Business License Permits, or shall lose the entitlement or priority under this subsection. Priority Group 1 applicants shall be awarded available Dispensary Business License Permits first, upon determination that such application is complete. Priority Group 2 applicants shall be awarded available Dispensary Business License Permits next. All other applicants will next be evaluated for priority based on criteria set forth in a Priority Point System established pursuant to this Section.

All applications evaluated under the Priority Point System will be ranked from the most to the least points. Applicants for any available Medical Marijuana Business License Permit shall be awarded License Permits based upon this ranking using the following procedure, with eligibility reassessed after each License Permit is awarded: (1) Remaining eligible Applicants with the most number of points pursuant to this Section in descending order from highest points to lowest points until all available License Permits are awarded; (2) If there are two or more eligible applicants with the same number of points those applicants shall be grouped together and, if there are more eligible applicants in this group than the remaining number of available License Permits, the City of Long Beach shall utilize a public lottery to determine which applicant(s) is/are awarded a License Permit; (3) If there are more available license permits than eligible applicants for this group, but two or more applicants are within one-thousand (1,000) feet of each other, the City of Long Beach shall utilize a public lottery to determine which applicant is awarded a License Permit; (4) If, after this public lottery the number of eligible applicants exceeds the number of available License Permits to be awarded, the process shall be repeated until all available License Permits are awarded.

The criteria for Point System shall be as follows:

Suitability of the proposed property: (i) Applicant demonstrates proposed location exceeds all buffer zones established in this Chapter by at least five hundred feet (500') (1 point); (ii) Proposed property possesses air scrubbers or a filtration system capable of eliminating odors from

escaping the building or commitment to do so before operating (1 point); (iii) Proposed property is located within one thousand feet (1,000′) of a public transportation hub, stop, or station (1 point).

Suitability of security plan: (i) The Applicant′s security plan includes the presence of security personnel on premises or patrolling the premises twenty-four (24) hours per day (1 point); (ii) The Applicant′s security plan demonstrates a method to track and monitor inventory so as to prevent theft or diversion of marijuana (1 point); (iii) The Applicant′s security plan describes the enclosed, locked facility that will be used to secure or store marijuana when the location is both open and closed for business, and the steps taken to ensure marijuana is not visible to the public (1 point); (iv) The Applicant′s security plan includes measures to prevent the diversion of marijuana to persons under the age of eighteen (18) (1 point); (v) Applicant demonstrates security measures exceeding the requirements of this Chapter, including but not limited to brick or concrete construction or additional fire and/or security alarms (1 point);

Suitability of business plan and financial record keeping: (i) The Applicant describes a staffing plan that will provide and ensure safe dispensing, adequate security, theft prevention, and the maintenance of confidential information (1 point); (ii) Applicant provides an operations manual that demonstrates compliance with this Chapter (1 point);

Criminal history: (i) No Management Employee of an applicant has any felony convictions (1 point); (ii) Applicants without any pending criminal complaint(s) (1 point); (iii) The applicant certifies, as a condition of maintaining the business license permit, that it will not employ any person with any type of violent or serious felony conviction(s) as specified in Sections 667.5 and 1192.7 of the Penal Code or any felony conviction involving fraud, deceit or embezzlement (1 point); (iv) Applicants certify as a condition of maintaining the business license permit that they will not employ as managers or employees any person with any narcotic drug related misdemeanor conviction (1 point);

Regulatory compliance history: (i) Applicants have not had a permit or license revoked by the City of Long Beach (1 point); (ii) Applicants have not had administrative penalties assessed against their business (1 point); Applicants who had administrative penalties assessed against their business while Chapter 5.87 was effective (-1 point); Community service: Applicants demonstrate involvement in the community, other non-profit association, or neighborhood association (1 point);

Labor Relations: (i) Applicant is party to a labor peace agreement or collective bargaining agreement with a bona fide labor organization (1 point;) (ii) Applicant pays a living wage (at least two hundred percent (200%) of the Federal Poverty Level for a family of two) (1 point); (iii) Applicant provides employer-paid health insurance benefits for its employees (1 point); (iv) Applicant provides equipment, standards and procedures for the safe operation of its facilities and engages employees on best practices (1 point); (v) Applicant provides training and educational opportunities for employee development (1 point); (vi) Applicant or entity has no previous record of violating federal or state laws relating to workplace safety, wages and compensation, discrimination, or union activity (1 point). (Measure MM § 4, 11-8-2016)

5.90.080 Vacant dispensary allocation.

The City Manager shall determine, at the end of the fourth (4th) calendar quarter following implementation of this Chapter, and each year thereafter, whether additional Medical Marijuana Dispensaries shall be licensed and permitted within the City based on the total number of Medical Marijuana Dispensaries authorized pursuant to this Chapter. Additional business license permit applications above those Medical Marijuana Businesses already licensed and permitted shall be accepted only to the extent the Director of Development Services determines that initiation of the business license permit application process will not lead to the total number of licensed and permitted Medical Marijuana Dispensaries, as a group, to exceed the restrictions established pursuant to this Chapter.

Should the City Manager determine the City shall accommodate additional Medical Marijuana Dispensaries within the restrictions set forth in this Chapter, the City Manager shall cause to be posted on the City's website a public notice of availability and the potential number of Medical Marijuana Dispensary Business license permits available. The notice will appear on the City's website for ten (10) consecutive days, immediately prior to the opening of the application period. The application process will then proceed in accordance with this Chapter.

In the event an existing Medical Marijuana Dispensary License Permit is surrendered or revoked, the City Manager shall, within ten (10) business days after the surrender or the exhaustion of the final appeal of the revocation, proceed with the posting and notice requirements of Section 5.90.220. (Measure MM § 4, 11-8-2016)

5.90.090 Medical marijuana cultivation operating conditions and restrictions.

Except as otherwise provided for in this Chapter, it shall be unlawful to operate a Medical Marijuana Business or to grow medical marijuana outside of an enclosed building. All Medical Marijuana Cultivation Business License Permits shall be issued for a specific fixed location within an enclosed building. This Section does not apply to a qualified patient cultivating marijuana pursuant to Health and Safety Code § 11362.5 or a primary caregiver cultivating marijuana pursuant to § 11362.5 if he or she cultivates marijuana exclusively for the personal medical use of no more than five (5) specified qualified patients for whom he or she is the primary caregiver within the meaning of Health and Safety Code § 11362.7 and does not receive remuneration for these activities, except for compensation provided in full compliance with subdivision (c) of Health and Safety Code § 11362.765.

Only cultivation locations intending to be compliant with MMRSA Type 1A, 2A, 3A and 4 State Cultivation licenses shall be licensed and permitted. Each applicant for a Medical Marijuana Cultivation Business License Permit shall specifically identify which State Cultivation License will be applicable to that application. The maximum cultivation canopy shall be limited by the license type specified in the MMRSA.

A Medical Marijuana Dispensary may operate a Medical Marijuana Cultivation Facility either on its premises or offsite, but must obtain a separate business license permit for each Medical Marijuana Cultivation Facility it operates in the City. No Medical Marijuana Dispensary may operate more Medical Marijuana Cultivation Facilities than are permitted by the MMRSA.

Upon regulatory implementation of the MMRSA, The Medical Marijuana Cultivation licensee shall send all medical cannabis and medical cannabis products cultivated to a MMRSA Type 11 qualified licensee for quality assurance and inspection and for a batch testing to a MMRSA Type 8 licensee prior to distribution in a manner consistent with the MMRSA requirements. Until regulatory implementation of the MMRSA, the Medical Marijuana Cultivation licensee shall send medical cannabis and medical cannabis products cultivated for batch testing to a testing laboratory which operates in compliance with Section 5.90.120.

Each Medical Marijuana Cultivation Facility shall maintain and operate an electronic point of sale plant tracking system compliant with the minimum requirements of the MMRSA at all times. Each Medical Marijuana Cultivator shall package or seal all medical cannabis in tamper-evident packaging and use a unique identifier, such as a batch and lot number or bar code, to identify and track the medical cannabis. All Medical Marijuana shall be labeled as required by Health and Safety Code § 19346. All packaging and sealing shall be completed prior to delivery or transportation. (Measure MM § 4, 11-8-2016)

5.90.100 Medical marijuana manufacturing operating conditions and restrictions.

Medical Marijuana Manufacturing Facilities must designate whether they will apply for or have obtained either a MMRSA Type 6 "Manufactur-

ing level 1″ State License (nonvolatile solvents) or a MMRSA Type 7 ″Manufacturing level 2″ State License (volatile solvents) when submitting a Business License application. Medical Marijuana Manufacturing Facilities must comply with sanitation standards equivalent to the California Retail Food Code (Part 7 (commencing with Section 113700) of Division 104 of the Health and Safety Code) for food preparation, storage, handling and sale of edible medical cannabis products. For purposes of this Chapter edible medical cannabis products are deemed to be unadulterated food products.

Medical Marijuana Manufacturing Facilities shall only produce, distribute, provide, donate or sell non-potentially hazardous food, as established by the state department of Public Health pursuant to § 114365.35 of the Health and Safety Code. All edible medical marijuana products shall be packaged at the Medical Marijuana Facility prior to distribution or transportation from the Facility. Medical Marijuana products shall be labeled and packaged in a tamper-evident package and have a unique identifier, such as a batch and lot number or bar code, to identify and track the Medical Marijuana. Labels and packages of Medical Marijuana products shall be compliant with the packaging and labeling requirements set forth in by Health and Safety Code § 19346.

The production of any medical marijuana-infused product shall meet all requirements of a retail food establishment as set forth in Chapter 8.45 of this Code. Except, as it relates only to enforcement of Chapter 8.45 of this Code, the fact the facility is engaged in the production of Marijuana related product shall not be deemed a violation of any Federal Food statutes, orders, ordinances, quarantines, rules, regulations, or directives relating to the public health. (Measure MM § 4, 11-8-2016)

5.90.110 Medical marijuana distributor operating conditions and restrictions.

Upon regulatory implementation of the MMRSA, all licensees holding medical marijuana cultivation or medical marijuana manufacturing licenses and permits shall send all medical cannabis and medical cannabis products cultivated or manufactured to a distributor, for quality assurance and inspection by the Medical Marijuana Distributor and for a batch testing by a Medical Marijuana Testing Laboratory prior to distribution to a dispensary. Those licensees holding a State issued Type 10A Dispensary license in addition to a medical marijuana cultivation license or a medical marijuana manufacturing license shall, upon State regulatory implementation of the MMRSA, send all medical cannabis and medical cannabis products to a Medical Marijuana Distributor for presale inspection and for a batch testing by a Medical Marijuana Testing Laboratory prior to dispensing any product.

Upon receipt of medical cannabis or medical cannabis products by a holder of a medical marijuana cultivation or medical marijuana manufacturing license, the Medical Marijuana Distributor shall process, test and distribute Medical Marijuana and Medical Marijuana products consistent with minimum requirements of the MMRSA. (Measure MM § 4, 11-8-2016)

5.90.120 Laboratory testing and testing laboratories.

For the purposes of testing medical cannabis or medical cannabis products, licensees shall use a testing laboratory that has adopted a standard operating procedure using methods consistent with general requirements for the competence of testing and calibration activities, including sampling, using standard methods established by the International Organization for Standardization, specifically ISO/IEC 17020 and ISO/IEC 17025, or any other standard set forth by the State, to test medical cannabis and medical cannabis products that are approved by an accrediting body that is a signatory to the International Laboratory Accreditation Cooperation Mutual Recognition Arrangement.

Until such time as the State is issuing MMRSA Type 8 Testing Laboratory licenses, the laboratory testing set forth in this Chapter may be conducted by a testing laboratory that is otherwise compliant

with the requirements set forth herein. A Testing Laboratory may apply for a business license permit application for the specific purpose of testing medical marijuana pursuant to the requirements of this Chapter and shall not be denied a business license permit on the basis it has not been issued a MMRSA Type 8 Testing Laboratory license, however the licensee shall apply for a State issued MMRSA Type 8 Testing Laboratory license within six (6) months from notice that the State is issuing such license. Denial of a MMRSA Type 8 license shall result in the revocation of the Medical Marijuana Testing Laboratory License Permit.

Medical marijuana shall be tested for concentration, pesticides, mold and other contaminants. Medical marijuana extracts shall be tested for concentration and purity of product. All testing shall be compliant with the MMRSA standards.

Except as provided in this Chapter, a licensed testing laboratory shall not acquire or receive medical cannabis or medical cannabis products except from a licensed facility in accordance with this Chapter, and shall not distribute, sell, deliver, transfer, transport, or dispense medical cannabis or medical cannabis products, from which the medical cannabis or medical cannabis products were acquired or received. All transfer or transportation shall be performed pursuant to a specified chain of custody protocol. A licensed testing laboratory may receive and test samples of medical cannabis or medical cannabis products from a qualified patient or primary caregiver only if he or she presents his or her valid recommendation for cannabis for medical purposes from a physician. A licensed testing laboratory shall not certify samples from a qualified patient or caregiver for resale or transfer to another party or licensee. All tests performed by a licensed testing laboratory for a qualified patient or caregiver shall be recorded with the name of the qualified patient or caregiver and the amount of medical cannabis or medical cannabis product received. (Measure MM § 4, 11-8-2016)

5.90.130 Reporting requirements.

A Medical Marijuana Business holding a Business License Permit shall report to the City Manager or his or her designee each of the following within the time specified; provided that if no time is specified, such a report shall be provided within fifteen (15) days of the triggering event: (1) The transfer or change of ownership interest, business manager, or in the permit application at least thirty (30) days before the transfer or change; (2) Sales and taxable transactions and file sales and use tax reports to the City quarterly; (3) A conviction of any disqualifying crime by any applicant of a Medical Marijuana Business. (Measure MM § 4, 11-8-2016)

5.90.140 Transportation and delivery.

It shall be unlawful for any person to transport medical marijuana, except as specifically allowed by this Chapter and State law. Transport or delivery activities shall comply with all of the following:

All medical marijuana-infused products are hand packaged, sealed and labeled, and the products stored in closed containers that are labeled as provided in this Section. All medical marijuana in a usable form for medicinal use is packaged and stored in closed containers that are labeled as provided in this Section. Each container used to transport or deliver medical marijuana is labeled with the amount of medical marijuana or medical marijuana-infused products, or the number and size of the plants, in the container. The label shall include the name and address of the medical marijuana business that the medical marijuana is being transported or delivered from and the name and address of the medical marijuana business or individual that the medical marijuana is being transported to. The label shall be shown to any law enforcement officer who requests to see the label. An individual transporting medical marijuana items must have a valid California Driver's License and shall use a vehicle for transport that is insured at or above the legal requirement in California; capable of securing (locking) the medical marijuana during transportation; and capable of being temperature controlled if perishable medical marijuana is being transported. A permitted medical marijuana dispensary may deliver medi-

cal marijuana only to a residence of a qualified patient or caregiver. For purposes of this rule, "residence" means a dwelling such as a house or apartment but does not include a dormitory, hotel, motel, bed and breakfast or similar commercial business.

The medical marijuana dispensary must specify home delivery services in its application for a business license and the approval for the business license shall set forth conditions related to the home delivery service. The Dispensary shall at all times maintain an electronic point of sale inventory tracking and sales software system that provides for the creation of the transportation manifests required by the MMRSA and the real time location tracking of the employee providing the delivery. A bona fide order must be received by a permitted dispensary from the individual requesting delivery, before 8:00 p.m. on the day the delivery is requested. The bona fide order must contain: (a) The individual requestor's name, date of birth, the date delivery is requested and the address of the residence where the individual would like the items delivered; (b) A document that describes the marijuana proposed for delivery and the amounts; and (c) A written statement that the marijuana is for medical use only and not for the purpose of resale.

Deliveries must be made before 9:00 p.m. local time and may not be made between the hours of 9:00 p.m. and 8:00 a.m. local time. At the time of delivery, the individual performing delivery must check the identification of the individual to whom delivery is being made in order to determine that it is the same individual who submitted the bona fide order, that the individual is eighteen (18) years of age or older, and must require the individual to sign a document indicating the medical marijuana products were received. A medical marijuana dispensary may not deliver medical marijuana to an individual who is visibly intoxicated at the time of delivery, or who cannot provide a valid medical marijuana recommendation from a licensed medical doctor authorized by State law to issue recommendations, or to an individual who fails to provide a valid government issued identification verifying that the person is eighteen (18) years of age or older. Deliveries may not be made more than once per day to the same physical address or to the same individual. Marijuana items delivered to an individual's residence must: (a) Comply with all packaging and labeling regulations established by this Chapter or the State of California; (b) Be placed in a larger delivery receptacle that has a label that reads: "Contains marijuana: Signature of person 18 years of age or older required for delivery." All marijuana items must be kept in a lock-box securely affixed inside the delivery vehicle. A manifest must be created for each delivery or series of deliveries and the individual doing the delivery may not make any unnecessary stops between deliveries or deviate substantially from the manifest route.

Documentation Requirements. A medical marijuana dispensary must document the following regarding deliveries: The bona fide order and the date and time it was received by the retailer; The date and time the medical marijuana items were delivered; A description of the medical marijuana that was delivered, including the weight or volume and price paid by the consumer; Who delivered the medical marijuana items; and the name of the individual to whom the delivery was made and the delivery address; A dispensary is required to maintain the name of an individual to whom a delivery was made for eighteen (18) months from the date of delivery.

Home delivery or transportation services originating from within the City of Long Beach city limits, but not from a person having a valid medical Marijuana Business License are strictly prohibited. Home delivery or transportation services from outside the City of Long Beach city limits, or from a person or entity who does not have a valid Medical Marijuana Business License issued by the City of Long Beach are strictly prohibited. (Measure MM § 4, 11-8-2016)

5.90.150 License transferable and required conduct.

A Business License Permit issued pursuant to this Chapter shall become null and void if the

Medical Marijuana Business holding that Business License closes or dissolves, however a change in the Business name or form of corporate identity (e.g., conversion from a non-profit to a for profit status) shall not be deemed a dissolution nor a transfer pursuant to this Chapter. A Medical Marijuana Business License Permit is transferable but will require prior approval of the City. Any change in the ownership greater than ten percent (10%) of the licensee shall require notice to the City at least thirty days prior to the change and a new business license permit application. The licensee shall be permitted to conduct business under the prior business license permit while the City reviews the new application submitted pursuant to this section. Denial of the new business license application shall not result in the revocation of the existing business license permit. (Measure MM § 4, 11-8-2016)

5.90.160 Maintenance of records.

A Medical Marijuana Business shall maintain the following records on the Property: The full name, address, and telephone number(s) of the owner, landlord and/or lessee of the Property; The full name, address and telephone number(s) and a fully legible copy of a government issued form of identification of each Medical Marijuana Business employee engaged in the management of the Medical Marijuana Dispensary and a description of the nature of the participation in the management of the Medical Marijuana Business; The full name, date of birth, residential address, and telephone number(s) of each Medical Marijuana Business employee and Management Employee; the date each employee and management Employee joined the Business; and the exact nature of each employee's and management Employee's participation in the Medical Marijuana Business.

Each Medical Marijuana Business shall utilize point of sale software to track inventory and sales. The point of sale software shall be, upon regulatory implementation of the MMRSA, compliant with the State Unique Identifier and Track and Trace Program (Business and Professions Code 19335(a)). Each Medical Marijuana Business shall keep a complete set of books of account, invoices, copies of orders and sales, shipping instructions, bills of lading, weigh bills, bank statements including cancelled checks and deposit slips and all other records necessary to show fully the business transactions of such licensee. Receipts shall be maintained via a computer program or by pre-numbered receipts and used for each sale. The records of the business shall clearly track medical marijuana product inventory purchased and/or grown and sales and disposal thereof to clearly track revenue from sales of any medical marijuana from other paraphernalia or services offered by the Medical Marijuana Business. An inventory record documenting the dates and amounts of Medical Marijuana cultivated, processed or sold at the Property, and the daily amounts of Medical Marijuana stored on the Property. The records shall clearly show the source, amount, price and dates of all marijuana received or purchased, and the amount, price, dates and business, patient or caregiver for all medical marijuana sold. Proof of a valid Business License Permit issued by the City of Long Beach, in accordance with this Chapter. All records kept and maintained by the licensee shall at all times protect the confidential information of the patient or caregiver. All records must be identified as confidential and any disclosure shall be limited in a manner that maintains the confidentiality of the information contained therein.

Any and all records described in this Section shall be maintained by the Medical Marijuana Business for a period of seven (7) years.

Each Medical Marijuana Business operating in the City shall submit to the City Manager (or his or her designee) an annual financial report (hereinafter, the "Annual Report") prepared by the Business, using the following criteria: Each Annual Report shall be filed and submitted every calendar year no later than April 30 for each preceding calendar year (for example a Business's 2015 Annual Report shall be submitted to the City Manager no later than April 30, 2016). The Annual Report shall be a summary of the quarterly reports that were filed with the State Board of Equalization in the previous year. The Annual

Report shall document the number of Medical Marijuana transactions that took place during the reporting year to a Qualified Patient, employee or Management Employee for cash, credit, or in-kind contributions. Appended to the Annual Report shall be a copy of any and all documents, records or forms submitted to the State Board of Equalization for the reporting year, including but not limited to Board of Equalization Form 401 (or its electronic equivalent) which in any manner documents transaction activities relating to the operation of the Medical Marijuana Business. Appended to the Annual Report shall be an accounting of the number of Plants or clones cultivated by the Medical Marijuana Business, if any, during the reporting year. Any and all records or documents that serve as the basis for preparing the annual report shall be maintained by the Medical Marijuana Business for a period of seven (7) years. (Measure MM § 4, 11-8-2016)

5.90.170 Inspection authority.

City representatives (Health, Fire and Building inspectors) may enter and inspect the Property of each Medical Marijuana Business between the hours of 9:00 a.m. and 8:00 p.m. or during normal business hours. The Long Beach Police Department may be allowed to enter the Property if invited by the business manager or owner of the Business or in case of an emergency. Otherwise access shall only be available to the Police Department through a properly executed search warrant, subpoena, or court order. It shall be unlawful for any Property owner, landlord, and lessee, Medical Marijuana Business employee or Manager or any other person having any responsibility over the operation of the Medical Marijuana Business to refuse to allow, impede, obstruct or interfere with an inspection. (Measure MM § 4, 11-8-2016)

5.90.180 Term and renewal of business license permit.

Each Business License Permit issued pursuant to this Chapter shall be effective for five (5) years after issuance, and shall be renewed upon timely payment of all required licensing fees by the Medical Marijuana Business. The Licensee shall apply for renewal of the Business License Permit at least forty-five (45) days before the expiration of the license. The licensee shall apply for renewal using forms provided by the City Manager. If the Applicant fails to apply for renewal at least forty-five (45) days before the expiration of the License but does apply for renewal prior to expiration of the Business License Permit, the City Manager may process the renewal application if the Applicant submits a late filing fee of five hundred dollars ($500.00) at the time of submittal of the renewal application. The renewal license fee shall be equal to the annual license fee. The renewal fee, and late fee if applicable, shall accompany the renewal application. Such fee is nonrefundable.

In the event a Medical Marijuana Business that has been open and operating, and submitting required business license tax returns and taxes to the City, ceases providing business license returns and taxes to the City for two (2) consecutive reporting periods, the City Manager shall send notice to the Medical Marijuana Business demanding such reporting and payment and if no such reporting and payment is received within fifteen (15) days of the notice, the business license permit shall be deemed to have expired and the licensee shall cease doing business at the location. (Measure MM § 4, 11-8-2016)

5.90.190 Existing medical marijuana dispensaries.

Any operating Medical Marijuana Dispensary, collective, delivery service, operator, establishment, or provider that has not obtained a Business License Permit pursuant to this Chapter shall immediately cease operation until it fully complies with the requirements of this Chapter. (Measure MM § 4, 11-8-2016)

5.90.200 Prohibited activity.

It shall be unlawful for any person to cause, permit or engage in the cultivation, possession, distribution, exchange or giving away of Marijuana for medical or non-medical purposes except as provided in this Chapter. It shall be unlawful for

any person to cause, permit or engage in any activity related to Medical Marijuana except as provided in this Chapter and pursuant to all other applicable local and state law. It shall be unlawful for any person to knowingly make any false, misleading or inaccurate state mentor representation in any form, record, filing or documentation required to be maintained, filed or provided to the City of Long Beach under this Chapter. No Medical Marijuana Dispensary shall be open to or provide Medical Marijuana to qualified patients or employees between the hours of 10:00 p.m. and 9:00 a.m. The City Council may increase these hours of operation but may not decrease them. No person under the age of eighteen (18) shall be allowed on the Property, unless that minor is a Qualified Patient and is accompanied by his or her licensed Attending Physician, parent(s) or documented legal guardian. No Medical Marijuana Dispensary, Management Employee or employee shall cause or permit the sale, dispensing, or consumption of alcoholic beverages on the Property or in the parking area of the property. No dried Medical Marijuana shall be stored at the property in structures that are not completely enclosed, in an unlocked vault or safe, in any other unsecured storage structure, or in a safe or vault that is not bolted to the floor of the property. Medical Marijuana may not be inhaled, smoked, eaten, ingested, or otherwise consumed on the Property, or in the parking areas of the Property or in those areas restricted under the provisions of Health and Safety Code § 11362.79. (ORD-20-0042 § 1, 2020; Measure MM § 4, 11-8-2016)

5.90.210 Violations and enforcement.

Any person willfully misrepresenting any material fact in procuring the license herein provided for, shall be deemed guilty of a misdemeanor punishable by a fine of not more than one thousand dollars ($1,000.00) or by imprisonment for not more than twelve (12) months, or both such fine and imprisonment.

Any person who engages in any Medical Marijuana Business operations without a Business License Permit, except as otherwise provided in this Chapter, shall be guilty of a misdemeanor punishable by a fine of not more than one thousand dollars ($1,000.00) or by imprisonment for not more than twelve (12) months, or both such fine and imprisonment. The City may also pursue any and all remedies and actions available and applicable under local and State law for any violations related to the operation of a non-licensed medical marijuana business. Any operation of a Medical Marijuana Business without a Business License Permit shall be deemed unlawful and a public nuisance. It shall be unlawful and a violation of this Chapter for any person to permit a public nuisance to exist upon real property in which such person has an ownership or possessory interest. As a nuisance per se, such violation shall be subject to injunctive relief, revocation of the certificate of occupancy for the property, costs of abatement and any other relief or remedy at law or equity.

Any violation of the terms and conditions of the Business License Permit, of this Chapter, or of applicable local or state regulations and laws shall be grounds for suspending or revoking its license, pursuant to Section 5.90.240.

Any person violating any provision of this Chapter may be issued an administrative citation in accordance with Chapter 9.65 of this Code. Each day of operation in violation of this Chapter shall constitute a separate violation for purposes of application of the financial fine(s) of this Section. These fines and penalties are in addition to or in the alternative to any other penalties for violation of this Chapter. For the first five (5) days that a violation exists, a person shall be subject to a fine of one hundred dollars ($100.00) per day. Should a violation continue beyond five (5) days, the violator shall be subject to a fine of five hundred dollars ($500.00) per day from the sixth (6^{th}) day through the tenth (10^{th}) days of a violation. Should a violation persist beyond ten (10) days, the fine shall be one thousand dollars ($1,000.00) per day. The due process provisions of Chapter 9.65 of this code and the Suspension, Penalty, Revocation, and Appeals Process of Section 5.90.240 of this Chapter shall apply to all administrative citations

issued pursuant to this Section. A continuing violation of this Section that is of more than one consecutive day in duration shall be deemed a single violation for purposes of Section 5.90.240 application. (Measure MM § 4, 11-8-2016)

5.90.220 Acceptance and procedure of business license permit applications.

The City Manager shall issue Business License Permit application forms and all required supplemental documents required from applicants within ten (10) days after this Chapter has taken effect. Any Medical Marijuana Business desiring a Business License Permit required by this Chapter shall, prior to initiating operations, complete and file an application on a form supplied by the City, and shall submit the completed application to the City Manager with payment of a nonrefundable processing and notification fee not to exceed the annual Business License Fee set forth in this Chapter. After the City Manager has complied with this Section, the City Manager shall cause to be conspicuously posted on the City's website a public notice of availability. For Medical Marijuana Dispensary License Permit applications, the notice will appear on the City's website for ten (10) consecutive days, immediately prior to the opening of the application period. The notice shall specify that the City Manager will receive applications for further processing and consideration for thirty (30) days after the ten (10) day notice period expires (the "Medical Marijuana Dispensary Business License Permit application period"). The notice shall also specify the specific terms and procedures for conducting the public lottery set forth in Section 5.90.070. For all other Medical Marijuana Businesses, the notice shall remain posted with no expiration deadline.

The City Manager shall review each application upon submission and ensure that the application is complete. Incomplete applications will be promptly rejected and the applicant shall be notified that business day of the deficiencies. The applicant shall be given an opportunity to cure any incomplete or deficient application prior to the conclusion of the application processing term, if such time period is applicable. Any notices required by this Chapter shall be deemed issued upon the date they are either deposited in the United States mail or the date upon which personal service of such notice is provided. In addition to notice by mail and personal service, the City Manager shall contemporaneously give notice by electronic mail to the e-mail address listed on the application. At the conclusion of the Medical Marijuana Dispensary Business License Permit application period, the City Manager shall have forty-five (45) days to complete a review of the applications (the "application processing term") and shall assign points to each Applicant in accordance with Section 5.90.070. Five (5) days from the date the conclusion of the application period term, the City Manager will post the point priority rankings on its website and mail and e-mail written notification to each Applicant indicating the total points assigned, and the Applicant's rank.

Once the City Manager deems an application complete, the City Manager shall determine the availability of business license permits for the applied for use and, if such availability is not limited or restricted by this Chapter, or the City Manager can approve the application without exceeding the limited or restricted number of available license permits subject to the priority rights set forth in this Chapter, shall approve the application and issue the license permit within one (1) business day. If necessary, within fourteen (14) calendar days after the date of notice of point priority is posted on its website, the City Manager shall conduct the public lottery as set forth in Section 5.90.070 in accordance with previously published lottery procedures. All other Medical Marijuana Business licenses permits shall be processed in the normal course of business, but in no event shall the City Manager unreasonably delay the approval process. Medical Marijuana Business License Permits may be approved contingent upon issuance of approved building plans. (Measure MM § 4, 11-8-2016)

5.90.230 Medical marijuana business license permit application.

In addition to the general business license permit application requirements of Chapter 5.04, an

application for a business license permit to operate a medical marijuana business shall include completed forms provided by the City for that purpose. Any application for a Medical Marijuana Business license shall be accompanied by the business license application fee, and criminal background check (″Live Scan″) fee. The Applicant shall use the application to demonstrate its compliance with this Chapter and any other applicable law, rule, or regulation, or has made reasonable provision for the satisfaction of these requirements. The application shall include the following information: Name, address, e-mail address, Social Security number and contact phone number of the owner or owners of the medical marijuana business in whose name the permit is proposed to be issued. If an owner is a corporation, the name, address, e-mail address and contact phone number of all officers or directors of the corporation and all shareholders who individually own more than ten percent (10%) of the issued and outstanding stock of the corporation and the EIN for the corporation. If an owner is a partnership, association, or limited liability company, the EIN for the entity and the name, address, e-mail address and contact phone number of any person holding a voting interest therein and/or the managing member(s). If a managing member is an entity rather than an individual, the same disclosure shall be required for each entity with an ownership interest until a managing member that is a natural person is identified. If an owner is not a natural person, the organizational documents for all entities identified in the application, identification of the natural person that is authorized to speak for the entity and the address, e-mail address and contact phone number information for that person. Reasonable proof the entity is registered, if such registration is required, and in good standing with all applicable State Agencies.

Name, address, e-mail address and contact phone number of any business managers of the medical marijuana business, if the business manager is proposed to be someone other than the owner; and all agents of the medical marijuana business who act with managerial authority. A statement indicating whether any of the named owners, members, business managers, or persons named on the application have been: Denied an application for a Business License Permit pursuant to this Chapter, or any similar state or local licensing or permitting law, rule, or regulation, or had such a license or permit suspended or revoked; Convicted of violating any violent or serious felony(s) as specified in Sections 667.5 and 1192.7 of the Penal Code or any felony involving fraud, deceit or embezzlement. Proof of ownership or legal possession of the Property at which the medical marijuana business will be located. If the medical marijuana business is not the owner of the property of the business, the Applicant shall provide written authorization to the City from the property owner to enter the property for inspection of the property on a form approved by the City as well as an acknowledgement from the owner that the Applicant has the owner′s permission and consent to operate a medical marijuana business at the subject property. A certificate for proof of insurance signed by a qualified agent of an insurance company evidencing the existence of valid and effective policies of workers′ compensation and public liability insurance at least to the limits required by Section 5.90.030 of this Chapter, the limits of each policy, the policy number(s), the name of the insurer, the effective date, and expiration date of each policy. An identification of the specific State License as set forth in the MMRSA the proposed Medical Marijuana Business intends to apply for and obtain upon issuance of the City business license. An operating plan for the proposed medical marijuana business, including the following information: A description of the products and services to be provided by the medical marijuana business; A schedule depicting the hours of operation; A description of the procedures for cash handling and audits; A dimensioned floor plan, clearly labeled, showing: The layout of the facility and the floor plan in which the medical marijuana business is to be located; The principal uses of the floor area depicted on the floor plan, including but not limited to, the areas where non-patients will be permitted, pri-

vate consulting areas, storage areas, retail areas, areas for cash handling and storage, and restricted areas where medical marijuana will be located; and Electrical, mechanical, plumbing, disabled access compliance pursuant to Title 24 of the State of California Code of Regulations and the federally mandated Americans with Disabilities Act; and The separation of the areas that are open to persons who are not patients from those areas open to patients. For cultivation facilities, and medical marijuana businesses that produce medical marijuana-infused products, a plan that specifies: The methods to be used to prevent the growth of harmful mold and compliance with limitations on discharge into the wastewater system of the City as set forth in Long Beach Municipal Code Chapter 15.16, "Industrial Waste and Wastewater"; A minimum of a one (1) hour fire separation wall between a cultivation facility and any adjacent business. All ventilation systems used to control the environment for the plants that describes how such systems operate with the systems preventing any odor leaving the property. Such plan shall also include all ventilation systems used to mitigate noxious gases or other fumes used or created as part of the production process. A State seller's permit issued to the Applicant pursuant to Part 1 (commencing with Section 6001) of Division 2 of the Revenue and Taxation Code if such permit is required by law for the applicant's intended business operation.

Additional requirements: A fully legible copy of one valid government issued form of photo identification, such as a State Driver's License or Identification Card and Livescan finger-printing completed at the Long Beach Police Department. This requirement shall apply to all owners, business managers, and employees employed by the medical marijuana business. A plan for disposal of any medical marijuana or medical marijuana-infused product that is not sold to a patient or primary caregiver in a manner that protects any portion thereof from being possessed or ingested by any person or animal. A plan for ventilation of the medical marijuana business that describes the ventilation systems that will be used to prevent any odor of medical marijuana off the property of the business. A description of all toxic, flammable, or other materials regulated by a Federal, State, or local government that would have authority over the business if it was not a marijuana business, that will be used or kept at the medical marijuana business, the location of such materials, and how such materials will be stored. A statement of the amount of the projected daily average and peak electric load anticipated to be used by the business and certification from the landlord and utility provider that the property is equipped to provide the required electric load, or necessary upgrades that will be performed prior to final inspection of the property. A description of the point of sale software the medical marijuana business will utilize to track inventory and sales of medical marijuana. For any medical marijuana business with two (2) or more employees (as defined in the California Business and Professions Code, Section 19322(6)), a statement that the business will enter into, or demonstrate that it has already entered into, and will abide by the terms of a labor peace agreement. A statement signed under penalty of perjury by each owner or business manager that they have read, understand, and shall ensure compliance with the terms of this Chapter.

Should an applicant be awarded a license, any commitments in the application shall become conditions of the license. If a violation of a condition occurs, the City, pursuant to Section 5.90.240, may assess a penalty or seek suspension or revocation of the license. (Measure MM § 4, 11-8-2016)

5.90.240 Suspension, penalty, revocation and appeals process.

The City Manager shall provide a dated, written notice to the Liaison if it believes that his or her Medical Marijuana Business has violated any provision of this Chapter and any steps available to cure such violation. Within thirty (30) business days of receiving that notice, the Licensee shall have the right to file a written response with the City Manager. After receiving and reviewing the substantive content of any such response, the City Manager shall prepare a written report and for-

ward all evidence along with the report to the Marijuana Task Force which shall then determine whether or not the Licensee has violated any provision of this Chapter, whether the violation has been or is curable or not; and shall provide a dated, written notice to the Licensee of its factual findings and legal determination. If the City Manager determines that a Licensee has failed to comply with or cure any violation of any provision of this Chapter on at least five (5) separate, non-continuing occasions within twenty-four (24) months, or that a Licensee has been convicted for noncompliance with any Medical Marijuana State law, the City Manager shall revoke or suspend the Business License Permit. A Task Force finding of no violation or that a violation has been cured shall not be considered as a violation by the City Manager. The City Manager shall notify a Medical Marijuana Business's Liaison of its recommendation that its Business License be suspended or revoked by means of a dated, written notice, which shall advise the Licensee of its right to appeal the decision to the Long Beach City Council. The request for appeal shall be in writing, shall set forth the specific ground(s) on which it is based, and shall be filed with the City Manager within forty-five (45) calendar days from the date the notice was mailed along with an appeal deposit, in an amount determined by the Long Beach City Council. If a timely appeal is filed, a Business License Permit may not be suspended or revoked before that appeal has been fully adjudicated. The Long Beach City Council shall conduct a hearing (hereinafter, the "City Council Hearing") on the appeal or refer the matter to a hearing officer pursuant to Chapter 2.93 of this Code, within forty-five (45) calendar days from the date the completed request for appeal was received by the City Manager, except where good cause exists to extend this period. The appellant shall be given at least fifteen (15) calendar days' written notice of the City Council Hearing. The City Council Hearing shall be conducted pursuant to Chapter 2.93 of the Long Beach Municipal Code. The determination of the Long Beach City Council on the appeal shall be final, unless the licensee chooses to file a court action within forty-five (45) calendar days of that determination. If a Medical Marijuana Business's License Permit has been revoked or suspended, no other Business License Permit application shall be considered for that Business for a period of one (1) year from either: (a) the date on which the notice of the revocation or suspension was mailed, or (b) the date of the final decision of the Long Beach City Council, whichever is later. (Measure MM § 4, 11-8-2016)

5.90.250 Compliance and changes to applicable law.

If any State law applicable to this Chapter changes or is amended, this Chapter shall be construed in a manner that ensures that Qualified Patients continue to have safe, affordable access to Medical Marijuana. Except as may be provided otherwise in this Chapter, any law or regulation adopted by the State governing the cultivation, production, possession or distribution of marijuana for medical or recreational use shall also apply to Medical Marijuana Businesses in the City. If there is a conflict between State law and this Chapter, State law shall be applied. A conviction for noncompliance with any applicable State law or regulation shall be grounds for revocation or suspension of any license or permit issued under this Chapter. No Medical Marijuana Business shall continue operations in violation of an additional State law or regulation applicable within the City after the effective date of the State law or regulation. If the State prohibits the cultivation, production, possession or other distribution of marijuana through Medical Marijuana Businesses, or if a court of last resort with competent jurisdiction determines that the Federal government's prohibition of the cultivation, production, possession or other distribution of marijuana through Medical Marijuana Businesses supersedes State law, any business license permit issued pursuant to this Chapter shall be deemed to be immediately revoked by operation of law. (Measure MM § 4, 11-8-2016)

5.90.260 Establishment of a Medical Marijuana Task Force.

The Long Beach Medical Marijuana Task Force ("Task Force") shall be established. The Task Force shall consist of nine (9) members. Appointments to the Task Force shall be made and vacancies on the Task Force shall be filled by the Mayor and City Council in accordance with the provisions in Chapter 2.18.050 of this Code. Services of the members of the Task Force shall be voluntary and members will serve without compensation. All members of the Task Force shall be residents of the City. The Task Force shall be comprised of the following members: Three (3) Task Force members shall be representatives from three (3) separate Medical Marijuana Businesses operating in the City; Four (4) Task Force members shall be representatives of recognized neighborhood organizations which have at least one (1) Medical Marijuana Business operating within its boundaries and at least two (2) of whom are Qualified Patients or Care Givers; One (1) Task Force member shall be a representative of a local patient advocacy organization with a background in working to protect the interests of medical marijuana patients; and One (1) Task Force member shall be a representative of a local labor organization representing Medical Marijuana employees employed at licensed Medical Marijuana Businesses in the City.

The Medical Marijuana Task Force shall have the power and duty to: Recommend to the City operational and safety standards for Medical Marijuana Businesses operating in the City; Develop and make recommendations for a mediation process to be used by operators of medical dispensaries, patients, and neighbors of dispensaries to address community concerns and nuisance issues and resolve conflicts and disputes; Render decisions with respect to a Medical Marijuana Business' compliance as set forth in Section 5.90.240 of this Chapter. (Measure MM § 4, 11-8-2016)

5.90.270 City Manager authorized to issue rules.

The City Manager or his designee may adopt reasonable rules and regulations that the City Manager determines are necessary to implement the requirements and administration of this Chapter. (Measure MM § 4, 11-8-2016)

5.90.280 Severability.

If any provision of this Chapter, or the application thereof to any person or circumstance, is held invalid, that invalidity shall not affect any other provision or application of this Chapter that can be given effect without the invalid provision or application; and to this end, the provisions or applications of this Chapter are severable. Chapter 5.89 of the Long Beach Municipal Code is repealed effective on the first (1st) day after this Chapter becomes effective by operation of law. (Measure MM § 4, 11-8-2016)

5.90.290 Local enforcement and penalties for illegal marijuana businesses.

A. Applicability. This Section applies to all entities and persons engaging in medical and/or nonmedical marijuana related activity who are legally required to, but do not have, a City issued license, permit or authorization ("Establishment"). This Section also applies to any person or entity who has an ownership or possessory interest in any real property upon which an Establishment is being operated, permitted or maintained ("Property Owner").

B. Actions for injunctive relief and civil penalties.

1. As an alternative or in addition to any other remedy, the City Attorney may enforce the provisions of this Chapter against an Establishment and/or Property Owner in any court of competent jurisdiction. The City Attorney may apply to such court for an order seeking injunctive relief to abate or remove any nuisance caused, maintained, or permitted by an Establishment and/or Property Owner; to restrain any Establishment and/or Property Owner from taking any action contrary to the provisions of this Chapter or other applicable law; and/or to require any Establishment and/or Property Owner to take any action to comply with this Chapter or other applicable law.

2. In any civil court action brought by the City Attorney pursuant to this Section in which the City succeeds in obtaining an order from the court, the City shall be entitled to recover from an Establishment and/or Property Owner all of the City's costs of investigation, enforcement, abatement, and litigation, including but not limited to attorneys' fees.

3. The City shall also be entitled to recover civil penalties against an Establishment and/or Property Owner in a maximum amount of five thousand dollars ($5,000.00) per violation for each day an Establishment is operated, permitted, or maintained on the subject property. In assessing the amount of the civil penalty, the court shall consider any one or more of the relevant circumstances presented by any of the parties to the case, including, but not limited to, the following: the nature and seriousness of the violation, any economic benefit gained through the violation, the number of violations, the length of time over which the violation occurred, the willfulness of the defendant's violation, and the defendant's assets, liabilities, and net worth.

4. The City Attorney is authorized, without further direction from the City Council, to institute any civil actions permitted pursuant to this Section.

C. Prohibited property sites for marijuana-related operations.

1. The City may in its sole discretion take any action as specified in this subsection.

2. If the City discovers an Establishment is currently and/or was operating within the previous 60 days at or on a property, or any portion thereof, the City may take action as specified herein. The City shall notify the Property Owner in writing of their right to file, within fifteen (15) days after the date of mailing of the Notice, written request of a hearing to the City disputing the alleged Establishment operation. Such written request shall set forth the specific ground(s) on which the dispute is based and the Property Owner shall pay to the City at the time of filing said written request a filing fee in an amount to be set by resolution of the City Council. Failure to file the written request within the time period specified shall result in waiver of any right to dispute the allegation of operation of an Establishment at the subject property. In the event of such waiver, no medical or nonmedical marijuana business, whether licensed or non-licensed, shall be permitted to operate at the subject property for a period of one (1) year from the 16th day after the date of mailing of the Notice.

If the written request is filed within the time period specified, within thirty (30) days following the filing of said written request, the City shall set a hearing to be held not less than ten (10) days nor not more than thirty (30) days thereafter, and such hearing may for good cause be continued by the City. The hearing shall be held in accordance with Chapter 2.93 of this Code, except that the matter shall be automatically referred to the City Clerk for selection of a Hearing Officer, without the City Council's referral, in accordance with Subsection 2.93.050.B of this Code. The City shall thereupon make a written report to the Hearing Officer reflecting such determination that an Establishment exists and/or existed at the subject property. Whenever it has been determined that an Establishment was and/or is in operation, no medical or nonmedical marijuana business, whether licensed or non-licensed, shall be permitted to operate at the subject property for a period of one (1) year from the effective date of such determination.

The prohibitions contained in this subsection shall be sufficient grounds to deny any application for operation of a marijuana-related business at the subject property received within the one-year time period.

3. In the event the City revokes a Property Owner's Non-Residential Rental Business License for violating this Chapter, no medical or nonmedical marijuana business, whether licensed or non-licensed, shall be permitted to operate at the subject property for a period of five (5) years from the effective date of revocation of the Non-Residential Rental Business License. Such revocation shall be sufficient grounds to deny any application for operation of a marijuana-related business at the subject property received within the five-year pe-

riod. This prohibition shall also remain in effect in the event a Property Owner (or an entity owned by or affiliated with such Property Owner) obtains another Non-Residential Rental Business License anytime within the five-year period for the subject property.

D. Disconnection of utilities.

1. To the maximum extent permitted by law, and in accordance with the processes thereof, the City may discontinue utility services to any premises upon which an Establishment is operating.

2. Prior to the disconnection of utility services, the City must notify, wherever possible, the Property Owner and occupant of the building, structure, or premises upon which the Establishment is operating, of the decision to disconnect the utility service(s) and the reason(s) for service suspension at least seven (7) calendar days before taking such action, unless a different period of notification is mandated by law; provided that the City's Building Official may dispense with any attempt at prior notification if, in the sole discretion of the Building Official, the nature or severity of any apparent dangerous hazard justifies such inaction in accordance with other provisions of this Code.

3. In the event utilities are disconnected, the Building Official must notify the owner or occupant of the building, structure, or premises in writing of the disconnection as soon as practical thereafter.

4. Disconnected utilities shall not be re-established until an inspection has been made by the City's Building Official and the Building Official has determined that the unlawful Establishment has ceased operations; that any imminent hazard has been abated or eliminated (if applicable); that the building complies with applicable law; and that any applicable fees for disconnection, reconnection, penalties and/or other related services have been paid.

5. Removing or defacing a notice posted in relation to this provision shall constitute a separate and distinct violation of this Chapter.

E. Miscellaneous.

1. The enforcement and penalties stated herein are in addition to any additional civil or criminal remedies and actions available at law or equity for such violations.

2. Nothing in this Section shall be construed as requiring the City to allow, permit, license, authorize, or otherwise regulate medical or nonmedical marijuana, or as abridging the City's police power with respect to enforcement regarding medical or nonmedical marijuana, or as restricting or otherwise limiting the enforcement authority conferred upon the City or any State agency by other provisions of this Municipal Code or State law.

3. In the event any provision in this Section shall be deemed invalid, illegal or unenforceable, the validity, legality and enforceability of the remaining provisions shall not in any way be affected or impaired thereby and such provision shall be ineffective only to the extent of such invalidity, illegality or unenforceability. (ORD-17-0011 § 1, 2017)

5.90.300 Implementation of the Medicinal and Adult-Use Cannabis Regulation and Safety Act.

A. Replacement provisions.

1. Wherever this Chapter refers to the "Medical Marijuana Regulation and Safety Act" or "MMRSA" or its provisions, it shall be deemed to refer to the "Medicinal and Adult-Use Cannabis Regulation and Safety Act" or "MAUCRSA", enacted into law by the State of California on June 27, 2017, and its provisions.

2. Wherever this Chapter refers to "California Business and Professions Code Section 19300.5" and any of its subsections, it shall be deemed to refer to "California Business and Professions Code Section 26001".

3. With the exception of testing laboratory licenses, wherever this Chapter refers to state license types, they shall be deemed to bear the designation of an "M-license" for medicinal cannabis.

4. Wherever this Chapter refers to "Health and Safety Code Section 19346", it shall be deemed to refer to "California Business and Professions Code Section 26120".

5. Wherever this Chapter refers to a "Type 10A Dispensary" license, it shall be deemed to refer to a "Type 10 Retailer" license under MAUCRSA.

6. Wherever this Chapter refers to "Business and Professions Code section 19335(a)", it shall be deemed to refer to "Business and Professions Code section 26067(a)".

7. Wherever this Chapter refers to "Business and Professions Code Section 19322(6)", it shall be deemed to refer to "Business and Professions Code Section 26051.5(a)(5)".

B. Day Care Center Buffer.

1. Pursuant to its authority under Section 26054 of the Business and Professions Code, the City hereby implements the State's 600-foot radius buffer requirement for day care centers for Medical Marijuana Businesses licensed under this Chapter.

2. Per Section 26001(o) of the Business and Professions Code, "day care center" shall have the same meaning as in Section 1596.76 of the Health and Safety Code.

3. This Section shall only apply to Medical Marijuana Business License applicants who have submitted an application for a Medical Marijuana Business License under this Chapter on or after January 1, 2018. A Medical Marijuana Business License applicant who has submitted a Medical Marijuana Business License application prior to January 1, 2018, is exempt from the day care center buffer established by this Section as to that application.

C. Youth Center Buffer. Pursuant to its authority under Section 26054 of the Business and Professions Code, the City hereby establishes a 0-foot radius buffer for youth centers for Medical Marijuana Businesses licensed under this Chapter. (ORD-17-0026 § 1, 2017)

5.90.310 Implementation of the Cannabis Social Equity Program.

A. The Cannabis Equity Program provisions outlined in Chapter 5.92 of this Code shall be applicable to any Medical Marijuana Business who meets the criteria of the program.

B. An equity applicant or a group of equity applicants applying for a Medical Marijuana Business Permit as an equity business shall receive the same assistance and benefits as an equity business applying for an Adult-Use Cannabis Business Permit pursuant to Chapter 5.92 of this Code.

C. The City Manager is authorized to make reasonable rules, policies, and procedures consistent with the intent and spirit of Chapter 5.92 of this Code to develop and implement an administrative program for this Equity Program. Regulations promulgated by the City Manager become effective upon date of publication, unless specified otherwise. (ORD-22-0015 § 3, 2022)

CHAPTER 5.91 PREMIUM PAY FOR GROCERY WORKERS

5.91.005 Purpose.

As a result of the COVID-19 pandemic and the "Stay at Home" order issued by California Governor Gavin Newsom and the "Safer at Home" order issued by the City of Long Beach, this Ordinance aims to protect and promote the public health, safety, and welfare during the new coronavirus 19 (COVID-19) emergency by requiring grocery stores to provide premium pay for grocery workers performing work in Long Beach. Requiring grocery stores to provide premium pay to grocery workers compensates grocery workers for the risks of working during a pandemic. Grocery workers face magnified risks of catching or spreading the COVID-19 disease because the nature of their work involves close contact with the public, including members of the public who are not showing symptoms of COVID-19 but who can spread the disease. The provision of premium pay better ensures the retention of these essential workers who are on the frontlines of this pandemic providing essential services and who are needed throughout the duration of the COVID-19 emergency. As such, they are deserving of fair and equitable compensation for their work. (ORD-21-0004(Emerg.) § 1, 2021)

5.91.010 Short title.

This ordinance shall constitute the "Premium Pay for Grocery Workers Ordinance" and may be

cited as such. (ORD-21-0004(Emerg.) § 1, 2021)

5.91.020 Definitions.

For purposes of this Ordinance:

"Adverse action" means reducing the compensation to a grocery worker, garnishing gratuities, temporarily or permanently denying or limiting access to work, incentives, or bonuses, offering less desirable work, demoting, terminating, deactivating, putting a grocery worker on hold status, failing to rehire after a seasonal interruption of work, threatening, penalizing, retaliating, or otherwise discriminating against a covered grocery worker for any reason prohibited by Section 5.91.090.

"Adverse action" also encompasses any action by the hiring entity or a person acting on the hiring entity's behalf that would dissuade a grocery worker from exercising any right afforded by this ordinance.

"Aggrieved party" means a grocery worker or other person who suffers tangible or intangible harm due to a hiring entity or other person's violation of this ordinance.

"City" means the City of Long Beach.

"Covered grocery worker" means a grocery worker employed directly by a hiring entity who is entitled to premium pay pursuant to this Ordinance.

"Grocery store" means a store that devotes seventy percent (70%) or more of its business to retailing a general range of food products, which may be fresh or packaged. There is a rebuttable presumption that if a store receives seventy percent (70%) or more revenue from retailing a general range of food products, then it qualifies as a grocery store.

"Grocery worker" means a worker employed directly by a hiring entity at a grocery store. Grocery worker does not include managers, supervisors or confidential employees.

"Hiring entity" means a grocery store that employs over three hundred (300) grocery workers nationally and employs more than fifteen (15) employees per grocery store in the City of Long Beach.

"Premium pay" means additional compensation owed to a grocery worker that is separate from hiring entity payments for providing services, bonuses, and commissions, as well as tips earned from customers.

"Respondent" means a grocery store, parent company or any person who is alleged or found to have committed a violation of this Ordinance. (ORD-21-0004(Emerg.) § 1, 2021)

5.91.030 Grocery worker coverage.

For the purposes of this Ordinance, covered grocery workers are limited to those who perform work for a hiring entity where the work is performed in the City of Long Beach. (ORD-21-0004(Emerg.) § 1, 2021)

5.91.040 Hiring entity coverage.

A. For purposes of this Ordinance, hiring entities are limited to those who employ three hundred (300) or more grocery workers nationally and employ more than fifteen (15) employees per grocery store in the City of Long Beach.

B. To determine the number of grocery workers employed for the current calendar year:

1. The calculation is based upon the average number per calendar week of grocery workers who worked for compensation during the preceding calendar year for any and all weeks during which at least one (1) grocery worker worked for compensation. For hiring entities that did not have any grocery workers during the preceding calendar year, the number of grocery workers employed for the current calendar year is calculated based upon the average number per calendar week of grocery workers who worked for compensation during the first ninety (90) calendar days of the current year in which the hiring entity engaged in business.

2. All grocery workers who worked for compensation shall be counted, including but not limited to:

a. Grocery workers who are not covered by this Ordinance; and

b. Grocery workers who worked in Long Beach. (ORD-21-0004(Emerg.) § 1, 2021)

5.91.050 Premium pay requirement.

A. Hiring entities shall provide each grocery worker with premium pay consisting of an additional Four Dollars ($4.00) per hour for each hour worked.

B. Hiring entities shall provide the pay required by Subsection 5.91.050.A for a minimum of one hundred twenty (120) days from the effective date of this Ordinance.

C. Unless extended by City Council, this ordinance shall expire in one hundred twenty (120) days. (ORD-21-0004(Emerg.) § 1, 2021)

5.91.060 Grocery worker and consumer protections.

A. No hiring entity shall, as a result of this Ordinance going into effect, take any of the following actions:

1. Reduce a grocery worker's compensation;

2. Limit a grocery worker's earning capacity.

B. It shall be a violation if this Ordinance is a motivating factor in a hiring entity's decision to take any of the actions in Subsection 5.91.060.A, unless the hiring entity can prove that its decision to take the action(s) would have happened in the absence of this Ordinance going into effect. (ORD-21-0004(Emerg.) § 1, 2021)

5.91.070 Notice of rights.

A. Hiring entities shall provide covered grocery workers with a written notice of rights established by this ordinance. The notice of rights shall be in a form and manner sufficient to inform grocery workers of their rights under this ordinance. The notice of rights shall provide information on:

1. The right to premium pay guaranteed by this Ordinance;

2. The right to be protected from retaliation for exercising in good faith the rights protected by this ordinance; and

3. The right to bring a civil action for a violation of the requirements of this Ordinance, including a hiring entity's denial of premium pay as required by this Ordinance and a hiring entity or other person's retaliation against a covered grocery worker or other person for asserting the right to premium pay or otherwise engaging in an activity protected by this ordinance.

B. Hiring entities shall provide the notice of rights required by posting a written notice of rights in a location of the grocery store utilized by employees for breaks, and in an electronic format that is readily accessible to the grocery workers. The notice of rights shall be made available to the grocery workers via smartphone application or an online web portal, in English and any language that the hiring entity knows or has reason to know is the primary language of the grocery worker(s). (ORD-21-0004(Emerg.) § 1, 2021)

5.91.080 Hiring entity records.

A. Hiring entities shall retain records that document compliance with this Ordinance for covered grocery workers.

B. Hiring entities shall retain the records required by Subsection 5.91.080.A for a period of two (2) years.

C. If a hiring entity fails to retain adequate records required under Subsection 5.91.080.A, there shall be a presumption, rebuttable by clear and convincing evidence, that the hiring entity violated this Ordinance for each covered grocery worker for whom records were not retained. (ORD-21-0004(Emerg.) § 1, 2021)

5.91.090 Retaliation prohibited.

No hiring entity employing a grocery worker shall discharge, reduce in compensation, or otherwise discriminate against any grocery worker for opposing any practice proscribed by this Ordinance, for participating in proceedings related to this Ordinance, for seeking to exercise their rights under this Ordinance by any lawful means, or for otherwise asserting rights under this Ordinance. (ORD-21-0004(Emerg.) § 1, 2021)

5.91.100 Violation.

The failure of any respondent to comply with any requirement imposed on the respondent under this Ordinance is a violation. (ORD-21-0004(Emerg.) § 1, 2021)

5.91.110 Remedies.

A. The payment of unpaid compensation, liquidated damages, civil penalties, penalties payable to aggrieved parties, fines, and interest provided under this Ordinance is cumulative and is not intended to be exclusive of any other available remedies, penalties, fines, and procedures.

B. A respondent found to be in violation of this Ordinance for retaliation under Section 5.91.090 shall be subject to any appropriate relief at law or equity including, but not limited to reinstatement of the aggrieved party, front pay in lieu of reinstatement with full payment of unpaid compensation plus interest in favor of the aggrieved party under the terms of this Ordinance, and liquidated damages in an additional amount of up to twice the unpaid compensation. (ORD-21-0004(Emerg.) § 1, 2021)

5.91.120 Private right of action.

A. Any covered grocery worker that suffers financial injury as a result of a violation of this Ordinance, or is the subject of prohibited retaliation under Section 5.91.090, may bring a civil action in a court of competent jurisdiction against the hiring entity or other person violating this Ordinance and, upon prevailing, may be awarded reasonable attorney fees and costs and such legal or equitable relief as may be appropriate to remedy the violation including, without limitation: the payment of any unpaid compensation plus interest due to the person and liquidated damages in an additional amount of up to twice the unpaid compensation; and a reasonable penalty payable to any aggrieved party if the aggrieved party was subject to prohibited retaliation. (ORD-21-0004(Emerg.) § 1, 2021)

5.91.130 Encouragement of more generous policies.

A. Nothing in this Ordinance shall be construed to discourage or prohibit a hiring entity from the adoption or retention of premium pay policies more generous than the one required herein.

B. Nothing in this Ordinance shall be construed as diminishing the obligation of a hiring entity to comply with any contract or other agreement providing more generous protections to a grocery worker than required by this Ordinance. (ORD-21-0004(Emerg.) § 1, 2021)

5.91.140 Other legal requirements.

This Ordinance provides minimum requirements for premium pay while working for a hiring entity during the COVID-19 emergency and shall not be construed to preempt, limit, or otherwise affect the applicability of any other law, regulation, requirement, policy, or standard that provides for higher premium pay, or that extends other protections to grocery workers; and nothing in this Ordinance shall be interpreted or applied so as to create any power or duty in conflict with federal or state law. Nothing in this Section shall be construed as restricting a grocery worker's right to pursue any other remedies at law or equity for violation of their rights. (ORD-21-0004(Emerg.) § 1, 2021)

5.91.150 Severability.

The provisions of this Ordinance are declared to be separate and severable. If any clause, sentence, paragraph, subdivision, section, subsection, or portion of this ordinance, or the application thereof to any hiring entity, grocery worker, person, or circumstance, is held to be invalid, it shall not affect the validity of the remainder of this Ordinance, or the validity of its application to other persons or circumstances. (ORD-21-0004(Emerg.) § 1, 2021)

CHAPTER 5.92 ADULT-USE CANNABIS BUSINESSES AND ACTIVITIES

DIVISION I. PURPOSE AND DEFINITIONS

5.92.010 Purpose and intent.

It is the purpose and intent of this Chapter to:

A. Regulate the cultivation, possession, manufacture, distribution, processing, storing, laboratory testing, packaging, labeling, transportation, delivery, and sale of cannabis goods for adults

twenty-one (21) years of age and over, and co-located medicinal and adult-use commercial cannabis activities, in a manner that promotes and protects the health, safety, and welfare of the residents, neighborhoods, and businesses in the City and mitigates the costs to the community for the oversight of these activities.

B. Enforce rules and regulations consistent with State law pursuant to the MAUCRSA and any related or successor laws and regulations implemented by the State or any of its departments or divisions.

C. Regulate commercial cannabis activity in the City concurrently with the State. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.020 General provisions.

A. Legal authority. Pursuant to Sections 5 and 7 of Article XI of the California Constitution and provisions of the MAUCRSA, as it may be amended from time to time and any subsequent State legislation or regulations regarding same, the City is authorized to adopt ordinances that establish standards, requirements, and regulations for local licenses and permits for commercial cannabis activity involving adult-use cannabis. Any standards, requirements, and regulations regarding health and safety, security, welfare, and worker protections established by the State, or any of its departments or divisions, are the minimum standards applicable to commercial cannabis activity in the City.

B. Conflict of law. This Chapter is not intended to interfere with, abrogate, or annul any other ordinance, resolution, regulation, statute, or other provision of law. In the event of any conflict between the provisions of this Chapter and any other applicable State or local law or regulation, the more restrictive provision shall control.

C. Nothing in this Chapter is intended, nor shall it be construed to:

1. Interfere with an employer's rights and obligations to maintain a drug and alcohol free workplace or require an employer to allow or accommodate the use, consumption, possession, transfer, display, transportation, sale, or growth of cannabis in the workplace, or affect the ability of an employer to have policies prohibiting the use of cannabis by employees or prospective employees, or prevent employers from complying with local, State, or federal law.

2. Interfere with the right of any property owner from restricting or prohibiting any of the actions or conduct otherwise permitted under California Health and Safety Code Section 11362.1 on said property owner's privately owned real property.

3. Condone or legalize the possession, use, consumption, transportation, sale, or any other use of cannabis or cannabis products that are otherwise prohibited under State law.

4. Require the City to allow, permit, license, authorize, or otherwise regulate commercial cannabis activity, or to abridge the City's police power with respect to enforcement regarding commercial cannabis activity, or to restrict or otherwise limit the enforcement authority conferred upon the City, or any State agency, by other provisions of this Code or State law.

5. Exempt any commercial cannabis activity from any applicable local and State building, electrical, plumbing, land use, or any other building or land use standards or permitting requirements.

D. Adult-Use Cannabis Businesses, adult-use commercial cannabis activity, and Co-Located Cannabis Businesses shall only be allowed in compliance with this Chapter and all applicable provisions set forth in this Code, including but not limited to, the cannabis business tax ordinance pursuant to Chapter 3.80 of this Code, and all regulations governing the land use, building, grading, plumbing, septic, electrical, fire, hazardous materials, nuisance, and public health and safety.

E. If the State prohibits the cultivation, possession, manufacture, processing, storing, laboratory testing, labeling, transporting, distribution, delivery, or sale of cannabis goods through Adult-Use Cannabis Businesses, or if a court of competent jurisdiction determines that the federal government's prohibition of the sale, cultivation, manufacture, possession, or other distribution of

cannabis goods through Adult-Use Cannabis Businesses supersedes State law, any permit issued pursuant to this Chapter shall be deemed to be immediately revoked by operation of law with no ground for appeal, or other redress, on behalf of any Adult-Use Cannabis Business. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.030 Definitions.

The definitions set forth in the California Business and Professions Code Section 26000 et seq. shall apply to this Chapter and are hereby incorporated by reference. Any reference to State statutes includes any regulations promulgated thereunder and is deemed to include any successor or amended version of the reference statute or regulatory provision. Unless otherwise defined herein, and unless otherwise clearly apparent from the context, the following terms as used in this Chapter shall have the meanings set forth in this Section:

A. "Accreditation Body" means an impartial non-profit organization that operates in conformance with the International Organization for Standardization (ISO)/International Electrotechnical Commission (IEC) standard 17011 and is a signatory to the International Laboratory Accreditation Cooperation (ILAC) Mutual Recognition Arrangement (MRA) for Testing.

B. "Administrative Hold" means an order by the City Manager prohibiting the movement, removal, transport, use, treatment, or disposal of a material that is, or is suspected of being, adulterated, misbranded, or hazardous waste that is being mismanaged or that the City Manager has reason to suspect is, or will be, managed in violation of this Chapter.

C. "Adulterated" shall have the same meaning as California Business and Professions Code Section 26131.

D. "Adult-Use Cannabis" means cannabis or cannabis products for adults twenty-one (21) years of age or older who do not possess a physician's recommendation.

E. "Adult-Use Cannabis Business" means any person, entity, or operation, in whole or in part, whether operating for-profit or not-for-profit, and all associated owners, employees, managers, and agents, engaged in adult-use commercial cannabis activity.

F. "Adult-Use Cannabis Business Permit" or "Permit" means one (1) document issued by the City to reflect the regulatory business permit issued pursuant to the provisions of this Chapter and Title 5 of this Code, and a business license issued pursuant to Chapter 3.80 of this Code, authorizing the holder thereof to operate an Adult-Use Cannabis Business and to conduct adult-use commercial cannabis activities.

G. "Applicant" means a person or entity who has submitted an application for an Adult-Use Cannabis Business Permit pursuant to this Chapter, including any individual, officer, director, partner, or other duly authorized representative applying on behalf of an entity.

H. "Batch" means a specific quantity of homogeneous cannabis or cannabis product that is either a harvest batch or a manufactured cannabis batch.

I. "Batch Number" or "Lot Number" means any distinct group of numbers, letters, or symbols, or any combination thereof, assigned to a unique group of cannabis goods, from which the complete history of the commercial cannabis activity involving the cannabis goods can be determined, as required by State law.

J. "Cannabinoid" means any of the chemical compounds that are the active principles of cannabis.

K. "Cannabis" or "Plant" means all of the following:

1. All parts of the plant cannabis sativa linnaeus, cannabis indica, or cannabis ruderalis, whether growing or not; the seeds thereof; the resin, whether crude or purified, extracted from any part of the plant; and every compound, manufacture, salt, derivative, mixture, or preparation of the plant, its seeds, or resin.

2. The separated resin, whether crude or purified, obtained from cannabis.

3. "Cannabis" as defined by California Health and Safety Code Section 11018.

4. "Cannabis" does not include the mature stalks of the plant, fiber produced from the stalks, oil or cake made from the seeds of the plant, any other compound, manufacture, salt, derivative, mixture, or preparation of the mature stalks (except the resin extracted therefrom), fiber, oil, or cake, or the sterilized seed of the plant which is incapable of germination.

5. For purposes of this Chapter, "Cannabis" does not mean industrial hemp as defined by California Health and Safety Code Section 11018.5.

L. "Cannabis Concentrate" or "Concentrate" means cannabis that has undergone a process to concentrate one (1) or more active cannabinoids, thereby increasing the product's potency. For purposes of this Chapter, "Cannabis Concentrate" includes, but is not limited to, the separated resin obtained from cannabis, whether crude or purified, tinctures, capsules, suppositories, extracts, and vape cartridges. "Cannabis Concentrate" is not considered food, as defined by California Health and Safety Code Section 109935, or a drug, as defined by California Health and Safety Code Section 109925.

M. "Cannabis Facility" or "Facility" means a permanent structure in a fixed location that contains the permitted premises of one (1) Commercial Cannabis Business or where the permitted premises of two (2) or more Commercial Cannabis Businesses are located.

N. "Cannabis Goods" means cannabis and/or cannabis products.

O. "Cannabis Product" or "Manufactured Cannabis Product" or "Product" means cannabis that has undergone a process whereby the plant material is transformed into a concentrate for internal consumption or topical application, including, but not limited to, concentrated cannabis, an edible cannabis product, or a topical cannabis product containing cannabis or concentrated cannabis in combination with other ingredients.

P. "Cannabis Public Health Permit" means a written authorization issued by the Long Beach Health Department to operate an Adult-Use Cannabis Business pursuant to this Chapter.

Q. "Cannabis Special Event" means a temporary event where the onsite sale and consumption of cannabis goods is authorized in accordance with all applicable laws and regulations, including but not limited to, this code, California Business and Professions Code Sections 26000 et seq., Department of Cannabis Control regulations including Code of California Regulations Title 4, Chapter 5, and all other applicable State, federal and local laws and regulations.

R. "Cannabis Special Event Organizer" means a person who authorized by the Department of Cannabis Control to hold a cannabis event in accordance with the California Code of Regulations, Title 4, Chapter 5.

S. "Cannabis Special Event Vendor" means a "Dispensary" or "Retailer" licensed by the City who is authorized to sell "Cannabis Goods" at a Cannabis Special Event.

T. "Cannabis Waste" means waste that is generated from a commercial cannabis activity that contains cannabis or cannabis products.

U. "Canopy" means the designated area(s) at a permitted premises, except nurseries, that will contain mature plants at any point in time. The total area of the canopy shall be calculated and measured using the method(s) required by the State Department of Food and Agriculture.

V. "Certificate of Accreditation" means a certificate issued by an accreditation body that attests to a Laboratory's competence to carry out specific testing analysis.

W. "City" means the City of Long Beach.

X. "City Attorney" means the City Attorney of the City of Long Beach and his or her designee.

Y. "City Health Officer" means the City Health Officer of the City of Long Beach, his or her designee, or any other person exercising the duties of City Health Officer for the City of Long Beach.

Z. "City Manager" means the City Manager of the City of Long Beach and his or her designee.

AA. "Co-Located Cannabis Business" means any person, entity, or operation, in whole or in part, whether operating for-profit or not-for-profit, and all associated owners, employees, managers, or agents engaged in both adult-use and

medicinal commercial cannabis activities on the same permitted premises for one (1) identical type of commercial cannabis activity.

BB. "Code" means the Long Beach Municipal Code.

CC. "Commercial Cannabis Activity" or "Commercial Cannabis Activities" means the cultivation, possession, manufacture, distribution, processing, storing, laboratory testing, packaging, labeling, transportation, delivery, making available, or sale of cannabis goods.

DD. "Commercial Cannabis Business" means any person, entity, or operation, in whole or in part, whether operating for-profit or not-for-profit, and all associated owners, employees, managers, or agents that engages in adult-use commercial cannabis activity or adult-use and medicinal commercial cannabis activity from one (1) premises.

EE. "Common-Use Area" means any area of a cannabis manufacturer's licensed shared-use facility, including equipment that is available for use by more than one licensee, provided that the use of a common-use area is limited to one licensee at a time.

FF. "Component" means any substance or item intended for use in the manufacture of a cannabis product, including those substances or items that are not intended to appear in the final form of the product. "Component" may include cannabis, cannabis products used as ingredients, other ingredients, and processing aids.

GG. "Cultivation" means any activity involving the planting, growing, harvesting, drying, curing, grading, or trimming of cannabis, including nurseries.

HH. "Cultivation Area" means the combined total number of square feet on one (1) premises dedicated to the cultivation of living cannabis plants, including, but not limited to, any areas dedicated to the vertical and/or horizontal cultivation of cannabis.

II. "Cultivation Site" means a permanent structure in a fixed location that contains a permitted premises where cannabis is planted, grown, harvested, dried, cured, graded, or trimmed, or a premises where any combination of those activities occurs.

JJ. "Cultivator" means any person, entity, or operation, in whole or in part, whether operating for-profit or not-for-profit, and all associated owners, employees, managers, and agents engaged in planting, growing, harvesting, drying, curing, grading, or trimming cannabis, including a nursery which produces clones, immature plants, seeds, or other agricultural products specifically for the planting, propagation, or cultivation of cannabis.

KK. "Customer" means a natural person twenty-one (21) years of age or older or a natural person eighteen (18) years of age or older who possesses a physician's recommendation.

LL. "Day Care Center" shall have the same meaning as in California Health and Safety Code Section 1596.76.

MM. "Delivery" means the commercial transfer of cannabis goods by a Dispensary to a customer at a physical address. "Delivery" also includes the use of any technology platform by a Dispensary that is also owned, leased, or controlled by the Dispensary.

NN. "Delivery Employee" means an employee of a Dispensary who delivers cannabis goods from the premises of a Dispensary to a customer at a physical address. "Department of Cannabis Control" means the division of the State Department of Consumer Affairs responsible for licensing and regulating cannabis businesses in California.

OO. "Department of Cannabis Control" means the division of the State Department of Consumer Affairs responsible for licensing and regulating cannabis businesses in California.

PP. "Designated Area" means the area of a cannabis manufacturer's licensed shared-use facility that is designated principal licensee for the sole and exclusive use of a shared use manufacturing Operator Licensee, including storage of the shared use manufacturing Operator Licensee's cannabis, cannabis concentrates, and cannabis products.

QQ. "Director of Financial Management" means the Director of Financial Management of the City of Long Beach and his or her designee.

RR. "Dispensary" means any person, entity, or operation, in whole or in part, whether operating for-profit or not-for-profit, and all associated owners, employees, managers, or agents engaged in both medicinal and adult-use commercial cannabis activity from the same permitted premises for the retail sale and delivery of cannabis goods to customers. A "Dispensary," as that term is used in this Code, is a "Retailer" under the MAUCRSA.

SS. "Distribution" means the procurement, sale, and transport of cannabis or cannabis products between State licensees.

TT. "Distributor" means any person, entity, or operation, in whole or in part, whether operating for-profit or not-for-profit, and all associated owners, employees, managers, or agents that engages in the business of the distribution of cannabis goods between State licensees.

UU. "Dried Flower" means all dead cannabis that has been harvested, dried, cured, or otherwise processed, excluding leaves and stems.

VV. "Edible Cannabis Product" means manufactured cannabis that is intended to be used, in whole or in part, for oral human consumption including, but not limited to, chewing gum, but excluding products set forth in Division 15 (commencing with Section 32501) of the California Food and Agricultural Code. An edible cannabis product is not considered food as defined by California Health and Safety Code Section 109935 or a drug as defined by California Health and Safety Code Section 109925.

WW. "Electronic Age Verification Device" means a device capable of quickly and reliably confirming the age of the cardholder of a government-issued identification card using computer processes.

XX. "Employee" means any individual engaged in the operation of a Commercial Cannabis Businesses, whether full-time, part-time, permanent, or temporary, for a wage, salary, commission, barter, or any other form of compensation, or for no compensation, including, but not limited to, any owner-operator, member of the owner's family, partner, associate, agent, manager or solicitor, full-time employee, part-time employee, temporary employee, contractors, volunteers, and agents. The owner of a sole proprietorship shall not be considered an employee.

YY. "Equity Applicant" means an individual who meets the criteria in Section 5.92.1615.

ZZ. "Equity Business" means a cannabis business where a minimum of fifty-one percent (51%) ownership in the cannabis business is held by one equity applicant or, if the cannabis business will be held by a group of applicants in the Equity Program, any one (1) of the equity applicants must hold majority ownership interest in the cannabis business.

AAA. "Equity Dispensary" means a dispensary owned by an equity business as defined in Section 5.92.1620.

BBB. "Equity Employee" means an individual who meets the criteria in Section 5.92.1610.

CCC. "Extraction" means a process by which cannabinoids are separated from cannabis plant material through chemical or physical means.

DDD. "Fire Alarm System" means an assembly of equipment and devices arranged to signal the presence of a hazard requiring urgent attention, to which fire officials may respond.

EEE. "Flowering" means that a cannabis plant has formed a mass of pistils measuring greater than one-half inch (1/2") wide at its widest point.

FFF. "Good Standing" means that a Commercial Cannabis Business is regarded as having complied with all explicit obligations, while not being subject to any form of sanction, suspension, or disciplinary censure by the City, State, or any of the State's departments or divisions.

GGG. "Government-Issued Identification" means a document issued by a federal, state, county, or municipal government that includes the name, date of birth, physical description, and picture of the person, such as a driver's license, U.S. passport, military ID, or State or local government identification card.

HHH. "Harvest Batch" means a specifically identified quantity of dried flower or trim, leaves, and other cannabis plant matter that is uniform in strain, harvested at the same time, and, if applica-

ble, cultivated using the same pesticides and other agricultural chemicals, and harvested at the same time.

III. "Household" means the residence address as indicated on the equity verification application.

JJJ. "Household Size" means the number of individuals that meet any of the following criteria:

1. All spouses or domestic partners must be included in the household and must appear in the submission content.

2. All household members who are under 18 years of age must be the legal dependent of an adult household member, except in the case of emancipated minors, as claimed on the most recent income tax return, or legal minor children of title holders.

3. Pregnant applicants will only be counted as two household members with verifiable medical documentation.

4. Temporarily absent household members who intend to live in the residence upon return may be considered, if verifiable documentation supporting their absence is provided. Such household members include, but are not limited to, household members serving temporarily in the armed forces, or who are temporarily institutionalized.

5. Individuals not listed on the equity applicant's most recent tax return, such as elderly relatives, live-in assistants, and foster children will not be counted toward household size.

KKK. "Identification Card" means a document issued by the State pursuant to California Health and Safety Code 11362.7 et seq. that identifies a person authorized to engage in the medicinal use of cannabis and the person's designated primary caregiver, if any.

LLL. "Immature Plant" means a cannabis plant that is not flowering, including, but not limited to, seedlings, sprouts, and unrooted clones.

MMM. "Infusion" means a process by which cannabis, cannabinoids, cannabis concentrates, or manufactured cannabis is directly incorporated into a cannabis product formulation to produce a cannabis product.

NNN. "Ingredient" means any substance that is used in the manufacture of a cannabis product and that is intended to be present in the product's final form.

OOO. "Labeling" means any label or other written, printed, or graphic matter upon cannabis goods, its container or wrapper, or that accompanies cannabis goods.

PPP. "Labor Peace Agreement" shall have the same meaning as California Business and Professions Code 26001(y), as amended from time to time.

QQQ. "Licensee" means a person or entity licensed by the City of Long Beach to operate a cannabis business.

RRR. "Limited-Access Area" means an area within a permitted premises used for storing and holding cannabis goods and currency, which is only accessible to the permittee and authorized employees of the permittee.

SSS. "Live Plants" or "Live Cannabis Plants" means living cannabis flowers and plants, including but not limited to, seeds, sprouts, immature plants, plants in the vegetative stage, plants in the flowering stage, and mature plants.

TTT. "Manager" means any person(s) designated by a Commercial Cannabis Business to act as the representative or agent of the Commercial Cannabis Business in managing day-to-day operations with corresponding liabilities and responsibilities, and/or the individual in apparent charge of the permitted premises of the Commercial Cannabis Business. Evidence of management includes, but is not limited to, evidence that the individual has the power to direct, supervise, or hire and dismiss employees, control hours of operation, creates policy rules, or purchases supplies.

UUU. "Manufacture" means to compound, blend, extract, infuse, or otherwise make or prepare a cannabis product.

VVV. "Manufactured Cannabis Batch" means either of the following:

1. An amount of cannabis concentrate or extract that is produced in one (1) production cycle using the same extraction methods and standard operating procedures.

2. An amount of a type of manufactured cannabis produced in one (1) production cycle using the same formulation and standard operating procedures.

WWW. "Manufacturer" means any person, entity, or operation, in whole or in part, whether operating for-profit or not-for-profit, and all associated owners, employees, managers, and agents, engaged in the production, conversion, preparation, propagation, deriving, processing, or compounding of cannabis or cannabis products either directly or indirectly or by extraction methods, or independently by means of chemical synthesis, or by a combination of extraction and chemical synthesis at a fixed location that packages or repackages cannabis goods or labels or relabels its container.

XXX. "Manufacturing" means all aspects of the extraction and/or infusion processes, including processing, preparing, holding, storing, packaging, or labeling of cannabis product. "Manufacturing" shall also include any processing, preparing, holding, or storing of components and ingredients used in cannabis products.

YYY. "Marijuana" shall have the same meaning as cannabis under this Chapter.

ZZZ. "Mature Cannabis Plant" or "Mature Plant" means a cannabis plant that is flowering.

AAAA. "MAUCRSA" means the Medicinal and Adult-Use Cannabis Regulation and Safety Act, consisting of the legislation in SB 94.

BBBB. "Medicinal Marijuana Business" means any person, entity, or operation, in whole or in part, whether operating for-profit or not-for-profit, and all associated owners, employees, managers, and agents, engaged in commercial cannabis activity involving medicinal cannabis pursuant to Chapter 5.90 of this Code.

CCCC. "Medical Marijuana Business Permit" means one (1) document issued by the City to reflect the regulatory business permit issued pursuant to the provisions of Chapter 5.90 and Title 5 of this Code, and the business license issued pursuant to Chapter 3.80 of this Code, authorizing the holder thereof to operate a Medical Marijuana Business and to conduct medicinal commercial cannabis activities.

DDDD. "Medicinal Cannabis" or "Medicinal Cannabis Product" means cannabis or a cannabis product, respectively, intended to be sold for use pursuant to California Health and Safety Code Section 11362.5, by a medicinal cannabis patient in California who possesses a physician's recommendation.

EEEE. "Medicinal Cannabis Patient" or "Medical Patient" means a qualified patient or a person with an identification card.

FFFF. "Microbusiness" or "Type 12 Microbusiness" means a business as defined by California Business and Professions Code Section 26070, applying for, or issued, a Type-12 Microbusiness State license, to engage in three (3) or more of the following commercial cannabis activities from one permitted premises: cultivation on an area less than ten thousand (10,000) square feet, distribution, manufacturing, or retail sales (Dispensary).

GGGG. "Microorganisms" means yeasts, molds, bacteria, viruses, protozoa, and/or microscopic parasites and includes species that are pathogens. The term "Undesirable Microorganisms" includes those microorganisms that are pathogens, that subject a cannabis product to decomposition, that indicate that a cannabis product is contaminated with filth, or that otherwise may cause a cannabis product to be adulterated.

HHHH. "Misbranded" shall have the same meaning as California Business and Professions Code Section 26121.

IIII. "Non-Equity Business" means a business that does not meet the definition of an Equity Business as defined in Section 5.92.1620.

JJJJ. "Nonvolatile Solvent" means any solvent used in the extraction process that is not a volatile solvent, including but not limited to, carbon dioxide or ethanol.

KKKK. "Nursery" means a Cultivator that produces only clones, immature plants, seeds, and other agricultural products used specifically for the planting, propagation, and cultivation of cannabis.

LLLL. "Operation" means any act for which a person is legally required to have a State and local permit or license, or any commercial transfer of cannabis goods.

MMMM. "Operator" means a person that is engaged in any act for which a State and local permit or license is legally required.

NNNN. "Owner" means any of the following:

1. Any person with an ownership interest of ten percent (10%) or more in the Adult-Use Cannabis Business applying for a permit pursuant to this Chapter;

2. The chief executive officer of an entity, including nonprofits;

3. A member of the board of directors of a for-profit or non-profit entity;

4. All persons within an entity that have a financial interest of ten percent (10%) or more in the proposed Adult-Use Cannabis Business, including but not limited to:

a. A general partner of an Adult-Use Cannabis Business that is organized as a partnership;

b. A non-member manager or managing member of an Adult-Use Cannabis Business that is organized as a limited liability company;

c. Any person holding a voting interest in a partnership, association, or limited liability company;

d. All officers or directors of an Adult-Use Cannabis Business that is organized as a corporation and all shareholders who individually own more than ten percent (10%) of the issued and outstanding stock of the corporation.

OOOO. "Outdoors" means any location within the City that is not within an enclosed locked structure or building.

PPPP. "Package" and "Packaging" means any container or wrapper that may be used for enclosing or containing any cannabis goods for final retail sale. "Package" does not include a shipping container or outer wrapping used solely for the transport of cannabis goods in bulk quantity to a State licensee.

QQQQ. "Panic Hardware" means a door-latching assembly incorporating a device that releases the latch upon the application of a force in the direction of egress travel.

RRRR. "Parcel of Land" means one (1) contiguous piece of real property, its boundaries, and all the rights contained therein, which is identified by a Los Angeles County Assessor's Parcel Number (APN).

SSSS. "Permittee" means a person issued an Adult-Use Cannabis Business Permit pursuant to this Chapter.

TTTT. "Person" means a natural person as well as an entity, individual, firm, partnership, joint venture, association, corporation, limited liability company, estate, trust, business trust, receiver, syndicate, or any other legal entity or group, or combination thereof acting as a unit, and includes the plural as well as the singular number.

UUUU. "Physician's Recommendation" means a recommendation provided by a physician or surgeon that an individual may obtain and use cannabis for medicinal purposes in accordance with California Health and Safety Code Section 11362.5.

VVVV. "Playground" means any park or recreational area specifically designed to be used by children which has play equipment installed, including public grounds designed for athletic activities such as baseball, football, soccer, or basketball, or any similar facility located on public or private school grounds, or city, county, or state parks.

WWWW. "Premises" means a contiguous area wherein the permit privileges are, or will be, exercised, as diagrammed in the application for an Adult-Use Cannabis Business Permit, and for which a separate permit is required.

XXXX. "Primary Caregiver" means the individual, designated by a qualified patient, who has consistently assumed responsibility for the housing, health, or safety of said qualified patient pursuant to California Health and Safety Code Section 11362.7.

YYYY. "Principal Licensee" means the licensed cannabis manufacturer that has been approved by the City of Long Beach to operate its licensed premises as a Shared-use Manufacturing Facility.

ZZZZ. "Property Line" means the defined boundaries of a parcel of land.

AAAAA. "Property Owner" means the person who is the owner of record for the real property and premises where a commercial cannabis activity or commercial cannabis activities are located, or are proposed to be located.

BBBBB. "Public Beach" or "Beach" means any beach area used for recreational purposes which is owned, operated, or controlled by the State, any State agency, or any local agency within the City's authority, including but not limited to, Alamitos Bay Beach, Alamitos Beach, Alamitos Park Beach, Belmont Shore Beach, Colorado Lagoon Park, Granada Beach, Rosie's Dog Beach, Long Beach City Beach, Marine Stadium Beach, Mothers Beach, Peninsula Bayside Beach, Peninsula Beach, and Shoreline Aquatic Park.

CCCCC. "Public Park" or "Park" means publicly owned natural or open areas set aside for active public use for recreational, cultural, or community service activities, including but not limited to, all parks dedicated or designated in Table 35-2 of Chapter 21.35 of this Code.

DDDDD. "Public Place" or "Public" means any real property owned, leased, or used by a public entity, and any place on private property open to the public, common areas of buildings, private clubs, vehicles, those portions of any private property upon which the public has an express or implied license to enter or remain, and any place visible from such places. "Place open to the public" does not include any fenced area of a private residence regardless of whether it can be seen from a place open to the public.

EEEEE. "Public Right-of-Way" means any public highway, street, alley, sidewalk, parkway, and all extensions or additions thereto which is either owned, operated, or controlled by the City, or is subject to an easement or dedication to the City, or is a privately-owned area within City's authority which is not yet dedicated, but is designated as a proposed public right-of-way on a tentative subdivision map approved by the City.

FFFFF. "Qualified Patient" means a person who is entitled to the protections of California Health and Safety Code Section 11362.5, but who does not have an identification card.

GGGGG. "Quality Control Personnel" means any person or group, designated by the permittee to be responsible for quality control operations.

HHHHH. "Retail Area" means a building, room, or other area that is open to the public upon a premises in which cannabis goods are sold or displayed.

IIIII. "Security Alarm System" means an assembly of equipment and devices arranged to signal the presence of a hazard requiring urgent attention, to which police officials may respond.

JJJJJ. "Sell," "Sale," and "To Sell" means any transaction whereby, for any consideration, title to cannabis goods are transferred from one (1) person to another, and includes the delivery of cannabis goods in response to an order placed for the purchase of the same and soliciting or receiving an order for the same, but does not include the return of cannabis goods by a permittee to the permittee from whom the cannabis goods were purchased.

KKKKK. "Shared-Use Manufacturing Facility" or "Shared-Use Facility" means a manufacturing premises operated by a Principal Licensee in which Shared Use Manufacturing Operator Licensees are authorized to conduct manufacturing operations.

LLLLL. "Shared Use Manufacturing Operator Licensee" or "Operator Licensee" means any person, entity, or operation, in whole or in part, whether operating for-profit or not-for-profit, and all associated owners, employees, managers, or agents that engages in manufacturing activities limited to infusions, packaging/labeling of cannabis products, and extractions with butter or food grade oils in common-use areas of a licensed Shared-Use Manufacturing Facility, pursuant to California Department of Public Health Code Section 40191.

MMMMM. "Site" means one (1) or more contiguous lots or parcels of land which were developed and function as a single development for satisfying the requirements and development standards of this Code, including, but not limited to, access and parking.

NNNNN. "Site Boundary" means the outer defined boundaries of a site, which are cotermi-

nous with any or all portions of the property line(s) of the lot(s) or parcel(s) of land that total the whole of the site.

OOOOO. "State" means the State of California.

PPPPP. "State Licensee" means a person issued a State license by the State, or one of its departments or divisions, pursuant to the MAUCRSA to conduct adult-use and/or medicinal commercial cannabis activity, and includes the holder of a Testing Laboratory license.

QQQQQ. "State License" means a license issued by the State of California, or one of its departments or divisions, pursuant to the MAUCRSA to conduct adult-use and/or medicinal commercial cannabis activity, as well as a Testing Laboratory State license.

RRRRR. "Technical Report" means a document prepared by, and bearing the stamp of, a registered design professional or qualified specialist, laboratory, or fire safety specialty organization to analyze and demonstrate that the fire safety properties of the equipment, devices, systems, products, technologies, materials and uses attending the design, operation or use of a building or premises comply with all applicable local and State Building Codes, Fire Codes, Electrical Codes, and other laws.

SSSSS. "Testing Laboratory" means any person, entity, or operation, in whole or in part, whether operating for-profit or not-for-profit, and all associated owners, employees, managers, or agents offering or performing tests of cannabis goods and that is ISO/IEC 17025 accredited, or pending ISO/IEC 17025 accreditation.

TTTTT. "Time and/or Temperature Controlled" means a cannabis or cannabis product that requires time and/or temperature control for safety to limit pathogenic microorganism growth or toxin formation.

UUUUU. "Trim" means the excess snipping of leaves from the flowers of cannabis plants.

VVVVV. "Topical Cannabis Product" means a cannabis product intended for external use, such as cannabis-enriched lotions, balms, and salves. A topical cannabis product is not considered a drug as defined by California Health and Safety Code Section 109925.

WWWWW. "Track-and-Trace System" means the State-approved system required by the MAUCRSA to track commercial cannabis activity and movement of cannabis goods through the distribution chain.

XXXXX. "Transport," "Transporting," or "Transportation" means the physical movement of cannabis goods from the premises of one State licensee to the premises of another State licensee.

YYYYY. "Transport Only Distributor" means any person, entity, or operation, in whole or in part, whether operating for-profit or not-for-profit, and all associated owners, employees, managers, or agents that engages in the business of the transporting of cannabis goods between State licensees only where the cannabis or cannabis products were cultivated or manufactured by said permittee (self-distribution), or where the cannabis or cannabis products are cultivated or manufactured by other State licensees.

ZZZZZ. "Transporter" means an employee of a Distributor engaged in the procurement, sale, and transfer of cannabis goods from the premises of one State licensee to the premises of another State licensee.

AAAAAA. "Unique Identifier" means an alphanumeric code or designation used for reference to a specific cannabis plant on a permitted premises and any cannabis goods derived or manufactured from said cannabis plant.

BBBBBB. "Vacuum Oven" means an oven that uses a combination of heat and negative pressure (vacuum) to strip the concentrated material of any residual solvents that were used in the extraction process.

CCCCCC. "Volatile Solvent" means a solvent that is or produces a flammable gas or vapor that, when present in the air in sufficient quantities, will create explosive or ignitable mixtures. Examples of volatile solvents include, but are not limited to, hexane and liquefied petroleum gases, such as butane or propane.

DDDDDD. "Youth Center" shall have the same meaning as California Health and Safety Code Section 11353.1. (ORD-26-0006 § 1, 2026; ORD-22-0015 § 4, 2022; ORD-21-0023 §§ 1, 2, 2021; ORD-18-0015 § 6(Exh. F), 2018)

DIVISION II. ADMINISTRATION

Subdivision I. General Authority

5.92.110 Authority to delegate.

A. The City Manager may delegate an act required to be performed pursuant to this Chapter to any Code Enforcement Officer or Official of the City, including, without limitation, the Chief of Police, the Fire Code Official, the Building Official, the Director of Financial Management, the City Attorney, the City Health Officer, or any designee of such officers or officials. All references to the City Manager in this Chapter shall include any designee of the City Manager.

B. The City Manager has all the powers of any peace officer to:

1. Investigate violations or suspected violations of this Chapter; Chapter 3.80, Chapter 5.90, and Title 21 of this Code; the provisions of MAUCRSA; any regulations implemented and enforced by the State or any of its departments or divisions that may be enforced by peace officers; any other laws or regulations pertaining to Commercial Cannabis Businesses in this City, any resolutions or regulations promulgated pursuant to such provisions;

2. View, duplicate, and/or take possession of recordings made by the digital video surveillance system of a Commercial Cannabis Business, which shall be made available to the City Manager upon verbal request. No search warrant, court order, or subpoena shall be needed for the City Manager to view security records;

3. Enter the cannabis facility and premises of a Commercial Cannabis Business from time to time unannounced to make reasonable inspections to observe and enforce compliance with this Chapter and all laws and regulations of the City and State;

4. Serve all warrants, summonses, subpoenas, administrative citations, notices, or other processes relating to the enforcement of laws regulating commercial cannabis activities and Commercial Cannabis Businesses;

5. Assist or aid any law enforcement officer in the performance of his or her duties upon such law enforcement officer's request, or the request of other local officials that have jurisdiction;

6. Inspect, examine, or investigate any Commercial Cannabis Business, and the premises and/or cannabis facility for the same, where cannabis goods are grown, harvested, possessed, stored, cultivated, processed, manufactured, packaged, labeled, transported from, tested, distributed, sold, or made available, and any books and records in any way connected with any permitted activity;

7. Require any Commercial Cannabis Business, upon demand, to allow an inspection of any Commercial Cannabis Business during business hours, or at any time of apparent business, including, without limitation, any cannabis equipment, cannabis accessories, security records, inventory, on-site operations specific to the Commercial Cannabis Business, accounts, or books and records; and to permit the testing of, or examination of, cannabis goods;

8. Require applicants to submit complete and current applications, fees, and any other information the City Manager deems necessary to make permitting decisions and to approve material changes made by any applicant or Commercial Cannabis Business;

9. Conduct investigations into the character, criminal history, and all other relevant factors related to suitability of all applicants for a Commercial Cannabis Business Permit, and such other persons with a direct or indirect interest in a Commercial Cannabis Business, as the City Manager may require; and

10. Promulgate such administrative regulations as deemed necessary and appropriate, if said regulations are consistent herewith and with all applicable State law and regulations;

11. Exercise any other power or duty authorized by law.

C. Nothing in this Section is intended to, or shall operate to, change or shall have the effect of changing, the status of a City Manager's designee under this Section from a public or miscellaneous officer or employee to an individual peace officer or safety member or to a class of peace officer or safety member for purposes of retirement, worker's compensation or similar injury or death benefits, or any other employee benefit or benefits to which said officer or employee would not have been entitled to as a public employee prior to the adoption of this Section. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.120 Authority to order an administrative hold of cannabis goods.

To prevent destruction of evidence, diversion, or other threats to public safety, while permitting a Commercial Cannabis Business to retain its inventory pending further investigation, the City Manager may order an administrative hold of cannabis goods pursuant to the following procedure:

A. If during an investigation or inspection of a Commercial Cannabis Business, the City Manager develops reasonable grounds to believe certain cannabis goods constitute evidence of acts in violation of this Chapter, or rules promulgated pursuant to it, or otherwise constitute a threat to the public safety, the City Manager may issue a notice of administrative hold of any such cannabis goods.

B. The notice of administrative hold shall provide a documented description of the cannabis goods to be subject to the administrative hold.

C. The Commercial Cannabis Business shall completely and physically segregate the cannabis goods subject to the administrative hold in a separate area of the location under investigation, where it shall be safeguarded by the Commercial Cannabis Business. Pending the outcome of the investigation and any related disciplinary proceeding, the Commercial Cannabis Business is prohibited from selling, giving away, transferring, transporting, or destroying the cannabis goods subject to the administrative hold.

D. Following an investigation, the City Manager may lift the administrative hold, order the continuation of the administrative hold, or seek a Final Order for the destruction of the cannabis goods. A Commercial Cannabis Business shall be responsible for the cost of the destruction of cannabis associated with its violation.

E. Any decision or action of the City Manager pursuant to this subsection is subject to the appeal procedures pursuant to Section 5.92.1445.

F. Voluntary surrender of cannabis goods. The Commercial Cannabis Business, prior to a Final Order and upon mutual agreement with the City Manager, may elect to waive a right to a hearing and any associated rights, and voluntarily surrender any goods to the City Manager. Such voluntary surrender may require destruction of any cannabis goods in the presence of the City Manager. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.130 Authority to make reasonable rules, policies, and procedures.

A. The City Manager is authorized to make reasonable rules, policies, and procedures consistent with the intent and spirit of this Chapter as may be necessary to administer and enforce the provisions of this Chapter and any other ordinances, regulations or laws relating to and affecting the permitting and operations of Commercial Cannabis Businesses. Regulations promulgated by the City Manager become effective upon date of publication, unless specified otherwise.

B. Applicants and permittees shall cooperate with the City Manager, including City Manager designees who are conducting inspections or investigations relevant to the enforcement of laws and regulations related to this Chapter.

C. It is unlawful for any person to obstruct, impede, or interfere with the City Manager, from reasonable inspection, investigation, audits authorized by law or from exercising their respective duties under the provisions of this Chapter and all rules promulgated pursuant to it, including but not limited to, the following:

1. Threatening force or violence against the City Manager, or otherwise endeavoring to intimidate, obstruct, or impede the City Manager or any peace officers from exercising their duties. The term "threatening force" includes the threat of bodily harm to such individual or to a member of his or her family;

2. Denying the City Manager access to any portion of a Commercial Cannabis Business, premises, and/or cannabis facility during business hours or times of apparent activity;

3. Providing false or misleading statements;

4. Providing false or misleading documents and records;

5. Failing to timely produce requested books and records required to be maintained by the Commercial Cannabis Business; or

6. Failing to timely respond to any request for information made by the City Manager about an investigation of the qualifications, conduct, or compliance of a Commercial Cannabis Business or applicants. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.140 Authority of the Director of Financial Management.

The Director of Financial Management is authorized to make reasonable rules, policies, and procedures consistent with the intent and spirit of this Chapter concerning the applications, the application process, the information required of applicants, the application procedures, and the administration and procedures to be used and followed in the application process for permit applications and requests for permit changes or modifications required pursuant to this Chapter. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

Subdivision II. Permit Application and Administration

5.92.210 Business license and permit required.

A. It is unlawful for any person to engage in, operate, conduct, carry on, or allow to be carried on, the business of adult-use cannabis in the City without having first met the following requirements:

1. The person has paid any business license tax pursuant to Chapter 3.80 of this Code;

2. The person holds a valid permit pursuant to the requirements of this Chapter; and

3. The person holds a State license in accordance with California Business and Professions Code Section 26000 et seq. and any applicable regulations implemented by the State or any of its departments or divisions.

B. Each permit issued pursuant to the requirements of this Chapter shall entitle the holder thereof to obtain a City license to engage in the business described in the permit, upon payment of the license tax required by the provisions of Chapter 3.80 of this Code, provided the holder of the permit complies with all other applicable provisions of law or ordinance.

C. Fixed location required. A permit may only be issued for a specific, fixed location within a secured, fully enclosed building, that is subject to building and/or zoning permits and regulations. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.215 Permit application required filing.

A. Any person seeking an Adult-Use Cannabis Business Permit shall submit a written application to the City, signed under penalty of perjury, using the form approved by the City for that purpose and in the manner required by the Director of Financial Management. The application shall be accompanied by a non-refundable application fee, established by resolution of the City Council. All applications shall contain, at a minimum, the following information and documents unless otherwise specified by the Director of Financial Management:

1. Applicant information.

a. The legal business name of the applicant.

b. The applicant's mailing address, e-mail address, and business telephone number.

c. The federal employer identification number or social security number of the applicant.

d. A description of the business organizational structure of the applicant, including the entity identification number, if applicable.

e. The contact information for the Community Liaison, including the Liaison's full name, phone number, and e-mail address.

f. Other cannabis licenses. A list of all State licenses and any out-of-state or other local licenses, permits, or authorizations to conduct commercial cannabis activity held by the applicant, including the date the license was issued and the state license number.

g. Description of State licenses required. A description or identification of the State license(s) types that are required for the applicant's proposed operations.

h. Prior denials, suspensions, or revocations. A statement under penalty of perjury by the applicant, as to whether the applicant has ever had the right to conduct a commercial cannabis activity denied, suspended, or revoked by the City, State, or any other cannabis licensing authority, including out-of-state licensing authorities.

2. Owner information. Every application shall include the following information for every owner of the applicant's Adult-Use Cannabis Business:

a. The full legal name, title, social security number or individual taxpayer identification number, mailing address, e-mail address, telephone number, and percentage of ownership in the Adult-Use Cannabis Business.

b. A copy of a completed Live Scan fingerprinting and criminal background check form, identifying the Long Beach Police Department as the requesting agency; and

c. A color copy of every owner's government-issued identification.

3. Property information. Every application shall include, but not be limited to, the following property information concerning the proposed premises:

a. The physical address of the premises to be permitted;

b. A premises diagram;

c. The full legal name, e-mail address, and telephone number of the property owner for the proposed premises; and

d. Proof that the applicant has the legal right to occupy and use the premises for commercial cannabis activity, subject to the following requirements:

(i) If the Adult-Use Cannabis Business owns the real property where the commercial cannabis activity will occur, the applicant shall provide properly executed deeds or other proof of title to said real property.

(ii) If the Adult-Use Cannabis Business does not own the real property where the commercial cannabis activity will occur, the applicant shall provide the following:

1) A written statement, on a form provided by the City for that purpose, signed and notarized by each property owner under penalty of perjury, consenting and/or attesting to the following:

a. That commercial cannabis activity may be conducted on the property by the Adult-Use Cannabis Business applicant;

b. That the Adult-Use Cannabis Business applicant has the right to occupy the property;

c. That no person shall engage in commercial cannabis activity on the proposed premises without all licenses and permits required by this Code and State law to conduct commercial cannabis activity while a Commercial Cannabis Business application is pending;

d. That the City may enter the property to conduct property inspections during the application process and after a permit is issued; and

e. That each property owner has read, understands, and will ensure compliance with the terms of this Chapter.

2) A copy of the Property Owner's Non-Residential Rental Business License.

4. Details of business operation. Every application shall include details of the proposed operation, including but not limited to: the proposed hours of operation; a description of the nature of the proposed commercial cannabis activity; whether any other type of commercial cannabis activity will share the proposed premises or cannabis facility with the proposed operation; and all specifications for any equipment to be required for the proposed operation. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.220 Permit application investigation.

A. Upon receipt of a complete application, the Director of Financial Management shall refer the application to the appropriate City departments to determine whether the proposed premises and cannabis facility complies with all applicable laws and regulations.

B. As part of the application process, every Adult-Use Cannabis Business shall be subject to mandatory inspections of the proposed premises.

C. All applicants shall obtain all required land use approvals, and any other necessary approvals, certifications, permits, or licenses from the City, State, or any applicable State or local agencies, for each separate proposed premises and for every type of commercial cannabis activity required for the applicant's proposed operation. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.225 Co-location of adult-use and medicinal commercial cannabis activities.

The City may allow a Commercial Cannabis Business to conduct both adult-use and medicinal commercial cannabis activity on the same permitted premises if all of the following criteria are met:

A. The permittee holds both an Adult-Use Cannabis Business Permit and a Medical Marijuana Business Permit on the same premises for an identical type of commercial cannabis activity.

B. Except as otherwise authorized by law, the permittee only conducts one of the following types of commercial cannabis activities on the same permitted premises: retail sale (Dispensary), cultivation, distribution, manufacturing, or laboratory testing. Examples of exceptions authorized by law include, but are not limited to, businesses holding a State license for a Type 12 Microbusiness or Transport Only Distributors that hold a State license and City permit for cultivation or manufacturing.

C. Prior to the issuance of an Adult-Use Cannabis Business Permit, the applicant shall waive the rights to the inspection, penalty, suspension, revocation, and appeals process and requirements under Chapter 5.90 of this Code, and shall consent to subject the Medical Marijuana Business Permit to the inspection, penalty, suspension, revocation, and appeals processes and requirements of this Chapter.

D. The application for an Adult-Use Cannabis Business Permit shall be submitted by the same entity and owners that hold the Medical Marijuana Business Permit, or the same entity and owners who are named on the application for the Medical Marijuana Business Permit, for the identical premises as the Medical Marijuana Business.

E. The operation of adult-use and medicinal commercial cannabis activities from the same permitted premises complies with the requirements in this Chapter and all other applicable State and local laws and regulations, including, but not limited to, the location requirements specified in Section 5.92.420.

F. If the Commercial Cannabis Business is a Dispensary, the proposed Adult-Use Cannabis Dispensary shall also be a permitted Medical Marijuana Dispensary in good standing.

G. The Medical Marijuana Business Permit shall be issued before the Adult-Use Cannabis Business Permit will be issued. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

Editor's note—ORD-22-0015 § 4, 2022, deleted §§ 5.92.230 and 5.92.235 which pertained to the conversion to an adult-use, co-located cannabis business or to a co-located dispensary, and derived from ORD-18-0015 § 6(Exh. F), of 2018.

5.92.240 Effect of other permits or licenses.

Possession of other types of local and State licenses or permits does not exempt any person from the requirement of obtaining a permit under this Chapter. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.245 Incomplete applications.

A. Upon review of an application, if the Director of Financial Management determines an application is incomplete, the Director of Financial Management shall provide notice to the applicant, who shall have ninety (90) calendar days to correct all deficiencies.

B. If the applicant fails to correct said deficiencies within the ninety (90) day period, the application shall be deemed abandoned, void, and of no further force and effect. The applicant may reapply at any time following an abandoned application. The City will not refund any fees for incomplete or abandoned applications.

C. The Director of Financial Management may extend the deadline upon showing of good

cause by the applicant for the inability to provide all required information by the deadline, if a written request for an extension is received no later than ten (10) calendar days prior to the deadline. For purposes of this subsection, the term "good cause" shall mean the applicant's failure to complete the application process occurred due to circumstances outside of the applicant's control. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.250 One applicant per property address.

A. The Director of Financial Management shall only accept applications from one (1) applicant per property address at a time.

B. Any applications received by the Director of Financial Management from a different applicant, while an active application is pending for the same property address, is deemed void and of no force and effect.

C. If more than one (1) application for an Adult-Use Cannabis Business Permit has been submitted for the same property address, the first application received by the Director of Financial Management shall be eligible to proceed. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.255 Withdrawal of application.

A. An applicant may withdraw an application any time prior to the issuance or denial of a permit by submitting a signed and dated request to withdraw, on a form provided by the City for that purpose.

B. Upon the Director of Financial Management's receipt of the request to withdraw, the application is deemed withdrawn, void, and of no further force and effect.

C. Withdrawal of an application submitted under this Chapter does not deprive the Director of Financial Management of his or her authority to institute or continue any proceeding against the applicant for the denial of an application for a permit upon any ground provided by law or to enter an order denying an application for a permit upon any such ground. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.260 Revocable privilege.

A permit issued by the City is a revocable privilege. It is the responsibility of the applicant to provide all information required for approval of the permit and to demonstrate compliance with this Chapter and any other applicable law, rule, or regulation. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.265 Persons prohibited as owners.

A. It shall be unlawful for any of the following persons to be an owner of an Adult-Use Cannabis Business pursuant to this Chapter:

1. A sheriff deputy, police officer, or prosecuting officer, or an officer or employee of the State, County, or the City.

2. A person otherwise prohibited in this Chapter from engaging in commercial cannabis activity.

3. A licensed physician making patient recommendations for cannabis.

4. An individual who is under twenty-one (21) years of age.

5. A person who has been convicted of any offense within the last ten (10) years that is substantially related to the qualifications, functions, or duties of the operation of a Commercial Cannabis Business and conducting commercial cannabis activity, which includes the following offenses:

a. A violent felony, as specified under Penal Code Section 667.5(c).

b. A serious felony, as specified under Penal Code Section 1192.7(c).

c. A felony involving fraud, deceit, or embezzlement.

6. A person who has been convicted of any offense that is substantially related to the qualifications, functions, or duties of the operation of a Commercial Cannabis Business and conducting commercial cannabis activity, which includes the following offenses:

a. A felony conviction for hiring, employing, or using a minor in transporting, carrying, selling, giving away, preparing for sale, or peddling, any

controlled substance to a minor; or selling, offering to sell, furnishing, offering to furnish, administering, or giving any controlled substance to a minor.

b. A felony conviction for drug trafficking with enhancements pursuant to California Health and Safety Code Section 11370.4 or 11379.8.

7. Any person who has failed to remedy any outstanding delinquent taxes, fees, or judgment owed to the City.

8. A person who has, within the past (3) years, been sanctioned or fined for, enjoined from, found guilty of, or plead guilty or no contest to, any charge of engaging in commercial cannabis activity without the required permits, licenses, registrations, or approvals required by State or local law.

B. Conviction for any controlled substance felony after the issuance of an Adult-Use Cannabis Business Permit shall be grounds for revocation of said permit or denial of the renewal of said permit.

C. A plea or verdict of guilty, or a conviction following a plea of nolo contendere is deemed a conviction within the meaning of this Chapter.

D. Except as provided for in Section 5.92.265.A.6 and Section 5.92.1615.B.4.a, a prior conviction, where the sentence, including any term of probation, incarceration, or supervised release, is completed, for possession of, possession for sale, sale, manufacture, transportation, or cultivation of cannabis and/or cannabis goods shall not be the sole ground for denial of a permit. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.270 Limitations on liability.

To the fullest extent permitted by law, the City will not assume any liability whatsoever with respect to issuing any permit pursuant to this Chapter or otherwise approving the operation of any Adult-Use Cannabis Business or Co-Located Cannabis Business. Prior to issuance of an Adult-Use Cannabis Business Permit, the applicant, or its legal representative, shall execute an agreement, on a form approved by the City Attorney, regarding the following:

A. The applicant will indemnify, defend (at applicant's sole cost and expense), and hold harmless the City, and its officers, officials, employees, representatives, and agents from any and all claims, losses, damages, injuries, liabilities or losses which arise out of, or which are in any way related to, the City's issuance of the Adult-Use Cannabis Business Permit, the City's decision to approve the applicant's operation of any commercial cannabis activity or any Commercial Cannabis Business operation, the process used by the City in making its decision, or the alleged violation of any federal, State, or local laws by the Adult-Use Cannabis Business applicant, permittee, or any of its officers, managers, employees, or agents; and

B. The applicant will agree to reimburse the City for all costs and expenses, including but not limited to attorney fees and costs, which the City may be required to pay as a result of any legal challenge related to the City's approval of the applicant's Adult-Use Cannabis Business Permit, or related to the City's approval of the applicant's commercial cannabis activity. The City may, at its sole discretion, participate at its own expense in the defense of any such action, but such participation shall not relieve any of the obligations imposed hereunder. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.275 Payment of fees.

A. No person may commence or continue any adult-use commercial cannabis activity in the City, without timely paying in full all fees and taxes required for the operation of an Adult-Use Cannabis Business.

B. The actual cost to the City arising from the processing and oversight of permits, business permits and licenses, and the costs of monitoring and ensuring compliance with this Chapter, including the Equity Program, the Responsible Vendor Pilot Program, investigations, enforcement actions, and disciplinary or abatement proceedings, shall be offset through application fees, and annual renewal fees, and shall be established by resolution of the City Council which may be amended from time to time.

C. The amount of any fee, cost, or charge imposed pursuant to this Chapter shall be deemed

a debt to the City that is recoverable in any manner authorized by this Code, State law, or in any court of competent jurisdiction. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

Subdivision III. Permit Terms and Modifications

5.92.310 Term and renewal of permit.

A. All permits issued under the provisions of this Chapter shall be effective for a period not to exceed five (5) years after issuance. The City Manager may renew a permit if the City Manager determines that the permittee has complied with the provisions of this Chapter and all applicable laws during the preceding permit term, and if the permittee pays the renewal fees and taxes required by this Chapter.

B. Any permit issued under this Chapter does not confer a vested right or entitlement to receive a future permit under this Chapter.

C. Any permit issued under this Chapter does not authorize any conduct or continuance of any operation of a Commercial Cannabis Business, in the event a permittee fails to provide required business tax returns and taxes to the City. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.320 Permit changes or modifications generally.

A. Form and fees required. Any permit changes or modifications made pursuant to this Subdivision shall be submitted on a form, provided by the City for that purpose, with a nonrefundable fee established by resolution of the City Council.

B. No permittee may avail themselves of the provisions of this Subdivision if the Director of Financial Management has notified the permittee that the Adult-Use Cannabis Business Permit or Co-Located Cannabis Business Permits have been, or may be, suspended or revoked, or may not be renewed. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.330 Change of address.

A. Any relocation or expansion of the permitted premises that includes a different property address is considered a change of address.

B. No permittee shall operate an Adult-Use Cannabis Business or Co-Located Cannabis Business at any premises other than the premises specified in the permittee's permit(s).

C. The relocation of any Adult-Use Cannabis Business shall first be approved by the Director of Financial Management who shall determine whether all ordinances and regulations of the City will be complied with at any proposed new premises.

D. Only permittees may request to relocate an Adult-Use Cannabis Business operation to a new premises. Applicants seeking to relocate shall withdraw their existing application and submit a new application for the new proposed premises pursuant to the requirements of this Chapter.

E. The Director of Financial Management may approve a permittee's request to relocate the operation of an Adult-Use Cannabis Business if the relocation complies with the following requirements:

1. The permittee, and any owners identified in the permit, and the commercial cannabis activity specified in the existing permit remain unchanged if the request to relocate is approved.

2. The existing Adult-Use Cannabis Business Permit, and the corresponding State license, shall not be the subject of a pending revocation or suspension action by the City, State, or any of the State's divisions or departments.

3. If the permittee is a Dispensary, both the Medical Marijuana Dispensary and the Adult-Use Cannabis Dispensary shall relocate to the same premises at the same time. It shall be unlawful for a Co-Located Dispensary to relocate the operation of either the Adult-Use Cannabis Dispensary or the Medical Marijuana Dispensary without likewise changing the location of the other.

4. The proposed premises complies with the requirements in this Chapter and all other applicable State and local laws and regulations, including, but not limited to, the locations requirements specified in Section 5.92.420.

F. A Non-Equity Dispensary shall not be eligible to submit a request to relocate the operation of the Adult-Use Cannabis Dispensary until one

hundred eighty (180) days after the City begins accepting business license applications from Equity Dispensaries, or until all Equity Dispensaries have provided the complete, notarized Property Owner Authorization for the business premises in the business license application, whichever occurs sooner. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.340 Change of ownership.

A. Except as otherwise set forth in this Chapter, any sale, transfer, assignment, attempted sale, attempted transfer, or attempted assignment of a permit in violation of this Chapter shall be deemed to constitute a voluntary surrender of such permit, and all rights to operate a Commercial Cannabis Business in the City shall terminate, and any such permit(s) shall thereafter be deemed null and void.

B. No permittee may sell, transfer, or assign, or change ownership or control of an Adult-Use Cannabis Business Permit to another person, or by operation of law, unless and until the proposed new owner(s), or the proposed transferee(s), submit all required materials at least thirty (30) days prior to the change of ownership or transfer, pay all applicable fees, and independently meet the requirements of this Chapter. For purposes of this Chapter:

1. A change in ownership occurs when one (1) or more of the owners of a permit change and the new person added to the permit meets the definition of an "Owner" pursuant to this Chapter.

2. A change in ownership does not occur when one (1) or more owners leave the business by transferring their ownership interest to the other existing owner(s). In cases where one (1) or more owners leave the business by transferring their ownership interest to the other existing owner(s), the owner(s) that are transferring their interest shall provide a signed statement to the City confirming that they have transferred their interest.

C. If the permittee is a Co-Located Cannabis Business, any request to change ownership, or transfer a permit, shall not be approved unless both the Medical Marijuana Business and the Adult-Use Cannabis Business changes permit ownership at the same time, to the same owners, same business name, and in the same business formation. It shall be unlawful for a Co-located Commercial Cannabis Business to change ownership of either the Medical Marijuana Business Permit or the Adult-Use Cannabis Business Permit without likewise changing the ownership of the other.

D. The existing permittee may conduct business under the existing permit while the Director of Financial Management reviews the application for a change of ownership or permit transfer. Denial of an application for a change of ownership does not result in the revocation of the existing permit. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.350 Change in business name.

No permittee shall operate, conduct, manage, engage in, or carry on an Adult-Use Cannabis Business under any name other than the name of the Adult-Use Cannabis Business specified in the permit and/or any "doing business as" or "DBA" provided in the permit application. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.360 Physical modification of premises.

A. A permittee shall not make a physical change, alteration, or modification of the permitted premises without the prior written approval of the Director of Financial Management.

B. If a permitted premises is to be changed, modified, or altered, the permittee is responsible for filing a request for a premises modification with the Director of Financial Management and securing all necessary City approvals, project plan approvals, and permits.

C. Alterations or modifications requiring City approval include, without limitation:

1. The removal, creation, or relocation of a common entryway, doorway, passage, or a means of public entry or exit, when such common entryway, doorway, or passage alters or changes the limited-access areas within the permitted premises.

2. The removal, creation, addition, or relocation of the cultivation area.

3. Any other physical modification resulting in a material or substantial change in the mode or character of business operation.

4. The requirements of this Section are in addition to compliance with any other applicable State or local rule, law, or regulation pertaining to approval of building modifications, zoning, or land use requirements.

D. The Director of Financial Management may refer the plans and specifications to all concerned City departments for review and inspection, as appropriate. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

DIVISION III. GENERAL OPERATING CONDITIONS

The following general operating requirements are applicable to all Adult-Use Cannabis Businesses. Requirements in this Section are in addition to the requirements specific to each type of Adult-Use Cannabis Business set forth in Division IV (Dispensary operating conditions); Division V (Cultivation operating conditions); Division VI (Manufacturing operating conditions); Division VII (Shared Use Manufacturing operating conditions); Division VIII (Distribution operating conditions); and Division IX (Testing Laboratory operating conditions) of this Chapter. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

Subdivision I. Cannabis Facility and Location Requirements

5.92.410 Compliance.

A. Every Adult-Use Cannabis Business shall comply with all applicable State laws and regulations, as may be amended and adopted, including all permit, approval, inspection, reporting and operational requirements, imposed by the State or its regulatory agencies having jurisdiction over cannabis, commercial cannabis activity, or Commercial Cannabis Businesses.

B. Every Adult-Use Cannabis Business shall comply with all applicable State laws, guidelines, and regulations for cannabis and commercial cannabis activity, as may be adopted and as amended by any State agency or department, including, but not limited to, the Department of Cannabis Control, the State Department of Food and Agriculture, the State Department of Public Health, the State Department of Pesticide Regulation, the Attorney General, and the State Department of Tax and Fee Administration.

C. Every Adult-Use Cannabis Business shall comply with all applicable local and regional agency regulations, including, but not limited to, regulations issued by the State Water Resources Control Board and the Los Angeles County Agricultural Commissioner/Weights and Measures.

D. Adult-Use Cannabis Businesses shall provide copies of State, regional and local agency licenses, permits, approvals, or certificates upon verbal or written request by the City Manager, to serve as verification for such compliance. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.415 Right to use and occupy premises.

Every Adult-Use Cannabis Business permittee, and applicant for the same, shall maintain a legal right to occupy and a right to use the premises upon which the Adult-Use Cannabis Business operates. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.420 Location requirements.

A. Except as otherwise provided for in this Chapter, a premises shall comply with zoning districts in Title 21 (Zoning Ordinance) of this Code, Specific Plans, or Planned developments.

B. Adult-Use Cannabis Dispensary premises shall not be located within:

1. A six hundred foot (600') radius of a public or private school (as defined in California Health and Safety Code Section 11362.768(h)).

2. A six hundred foot (600') radius of a day care center.

3. A six hundred foot (600') radius of a playground or community center.

4. A six hundred foot (600') radius of a library.

5. An one thousand foot (1,000') radius of any other Dispensary.

6. Within a building which contains a dwelling unit, with the exception of adult-use cannabis dispensaries, as otherwise permitted on ground floors of mixed-use buildings within the Downtown Planned Development District (PD-30).

7. A building which contains a dwelling unit, with the exception of those dispensaries otherwise permitted on ground floors of mixed-use buildings within the Downtown Planned Development District (PD-30).

8. A dwelling unit within a zoning district.

C. A premises for a cannabis business that is not an Adult-Use Cannabis Dispensary shall not be located within:

1. An one thousand foot (1,000') radius of a public or private school (as defined in California Health and Safety Code Section 11362.768(h)).

2. An one thousand foot (1,000') radius of a public beach.

3. A six hundred foot (600') radius of a public park, public library, or day care center.

4. A building which contains a dwelling unit.

5. A dwelling unit within any zoning district.

D. Youth center buffer. Pursuant to its authority under California Business and Professions Code Section 26054, the City hereby establishes a zero-foot (0') radius buffer for youth centers for Adult-Use Cannabis Businesses licensed under this Chapter; therefore, there is no buffer distance requirement for youth centers for Adult-Use Cannabis Business within the City. (ORD-24-0024 § 1, 2024; ORD-23-0026 § 1, 2023; ORD-22-0015 § 4, 2022; ORD-21-0021 § 1, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.425 Noncompliant locations.

A. If the Director of Financial Management has deemed an application complete, any Adult-Use Cannabis Business may continue the application process unaffected if the proposed premises becomes non-compliant with the buffers in subsections (1) through (4) of Section 5.92.420.A due to the establishment of any sensitive use.

B. A permittee pursuant to this Chapter may continue to operate unaffected if the permitted premises becomes non-compliant with the buffers in subsections (1) through (4) of Section 5.92.420.A due to the establishment of any sensitive use, so long as an Adult-Use Cannabis Business Permit remains valid. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.430 Measurement of distance between sites.

The distance between a proposed premises and any sensitive use, as set forth in subsections (1) through (4) of Section 5.92.420.A, shall be determined by the horizontal distance measured in a straight line from the site boundary of the sensitive use to the closest site boundary of the site on which the proposed premises is to be located, without regard to intervening structures. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.435 Premises requirements.

A. Except as otherwise provided in this Chapter, the premises of two (2) or more Commercial Cannabis Businesses proposed on the same site or within the same cannabis facility shall be granted approval only if:

1. All of the proposed Commercial Cannabis Businesses and their operation from the same site or cannabis facility are authorized by both local and applicable State law and regulations; and

2. Every Commercial Cannabis Business within said cannabis facility or on any one site operates from a separate premises and property address.

B. Commercial Cannabis Businesses issued permits for multiple permit types at the same physical address shall maintain clear separation between permit types unless otherwise authorized by local and State law.

C. Two (2) or more permitted premises may share a common lobby, common interior walkway, or common interior hallway and bathroom(s), wherein no permitted privileges will be exercised,

provided that all premises comply with the requirements of this Chapter and any applicable State laws and regulations.

D. Commercial Cannabis Businesses shall obtain all necessary local and State licenses and per-

mits, and land use approvals from local and State agencies for each type of commercial cannabis activity proposed at every separate premises.

E. Commercial Cannabis Businesses shall ensure the requirements set forth in this Code for each type of commercial cannabis activity and every separate premises are satisfied, including all parking requirements.

F. Except for Commercial Cannabis Businesses authorized by the State to operate as a Type 12 Microbusiness, Commercial Cannabis Businesses shall only conduct one (1) type of commercial cannabis activity per permitted premises. Commercial Cannabis Businesses intending to apply with the State for, and operate as, a Type 12 Microbusiness State license shall obtain a separate permit for every type of commercial cannabis activity on the proposed premises.

G. The City may allow one (1) permittee to conduct both adult-use and medicinal commercial cannabis activities from the same permitted premises if:

1. The requirements of this Section are satisfied; and

2. The permittee holds both an Adult-Use Cannabis Business Permit and a Medical Marijuana Business Permit for the identical type of commercial cannabis activity at the same premises. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.440 Business identification signage.

A. Exterior business identification signage for every Adult-Use Cannabis Business shall conform to the requirements of State law and this Code, including, but not limited to, Title 21 of this Code and California Business and Professions Code, Chapter 15 ("Advertising and Marketing Restrictions") of Division 10.

B. Business identification signage shall be limited to that needed for identification only and shall not contain any logos or information that identifies, advertises, or lists the services or the products offered. Business identification signage is discouraged for Adult-Use Cannabis Businesses that are not open to the public.

C. Exterior signage for one (1) Commercial Cannabis Business issued permits for two (2) or more commercial cannabis activities at the same physical address shall be cumulative; one (1) business identification sign shall represent all uses. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.445 Fire prevention system.

A. Where applicable, every Adult-Use Cannabis Business shall implement fire prevention measures on the premises in compliance with Title 18 of this Code, including but not limited to, fire sprinkler systems, fire alarm systems, fire extinguishers, and gas detections systems.

B. The Adult-Use Cannabis Business shall obtain all necessary permits for any fire prevention systems installed at the premises and/or cannabis facility from the Long Beach Fire Department.

C. A minimum of a one (1) hour fire barrier shall be maintained between every premises of a Commercial Cannabis Business and any adjacent business that is not engaged in commercial cannabis activity or that is not a Commercial Cannabis Business.

D. Every premises shall be fully separated from any other premises where commercial cannabis activities are conducted by walls that extend from floor to underneath the roof with five-eighths inch (5/8") drywall on both sides. All doors and windows separating commercial cannabis activities shall be one (1) hour rated. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.450 General sanitation requirements.

A. Washing facilities. Every premises shall have:

1. Hand-washing facilities designed to ensure an employee's hands do not pose a source of contamination to products, surfaces, or packaging materials. Hand-washing facilities shall also be convenient and furnish hot running water running water of at least 100°F;

2. Effective hand-cleaning (liquid soap) and disposable paper towel or suitable drying devices;

3. Three (3) compartment utensil washing facilities;

4. Bathrooms; and

5. Mop sinks with hot and cold running water.

B. Adequate lighting. Cannabis facilities shall have adequate lighting in the following areas: handwashing areas; dressing and locker rooms; toilet facilities; all areas where components or cannabis goods are examined, trimmed, harvested, manufactured, processed, packed, or held; and in all areas where equipment or utensils are cleaned. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.455 Cannabis public health permit.

A. Permit required. Every Adult-Use Cannabis Business shall obtain a cannabis public health permit prior to the establishment or operation of any adult-use commercial cannabis activity and in addition to any other applicable permits and licenses required pursuant to State and local law to engage in adult-use commercial cannabis activity.

B. Application and fees required. To obtain a cannabis public health permit, every Adult-Use Cannabis Business shall file an application with the City Health Officer, on a form provided for that purpose, and pay a nonrefundable cannabis public health permit fee established by resolution of the City Council. The City Health Officer may request additional documentation and information as deemed necessary for the Adult-Use Cannabis Business to demonstrate compliance.

C. Permit provisions.

1. All cannabis public health permits are valid for twelve (12) months from the date of issuance and may be renewed annually.

2. Every cannabis public health permit is valid only for the person, premises, and type of commercial cannabis activity specified in the permit. Cannabis public health permits are not transferable upon change of ownership or relocation of the premises.

3. Every premises where commercial cannabis activities occur within the same cannabis facility requires a separate cannabis public health permit.

4. All public health permits and licenses shall be posted in a conspicuous place within the premises.

D. Permit renewals.

1. An application for renewal of any cannabis public health permit shall be submitted to the City Health Officer at least sixty (60) business days prior to the expiration date of the current cannabis public health permit, but no more than one-hundred and twenty (120) calendar days prior to the expiration of the current cannabis public health permit.

2. An Adult-Use Cannabis Business that does not obtain a renewed cannabis public health permit by the end of the business day of the expiration date shall discontinue operation of the Adult-Use Cannabis Business until a new cannabis public health permit is issued.

3. Any cannabis public health permit that has not been renewed by the annual renewal date will not be valid and is deemed inactive.

4. Denial of applications or renewals. The City Health Officer may deny an application or renewal application for a cannabis public health permit for any reason enumerated in Section 5.92.1540 of this Chapter.

E. Permit suspension or revocation.

1. Any cannabis public health permit issued under this Chapter may be suspended or revoked by the City Health Officer for any violation of the requirements of this Chapter, this Code, or State or local laws or regulations.

2. Any premises, or portion of a premises, for which the cannabis public health permit has been suspended or revoked shall close, cease doing business, and remain closed until the cannabis public health permit has been reinstated or reissued by the City Health Officer.

3. Whenever the City Health Officer finds the operation of any Adult-Use Cannabis Business does not comply with the requirements of this Chapter or State or local laws or regulations, a written notice to comply, that contains a required compliance date, shall be issued to the Adult-Use Cannabis Business.

4. If the Adult-Use Cannabis Business fails to comply within the specified time, the City Health Officer may issue a written notice setting forth the acts or omissions with which the Adult-Use Cannabis Business is charged, and informing the Adult-Use Cannabis Business of a right to a hearing, if requested, to show cause why the cannabis public health permit should not be suspended or revoked.

5. Notice requirements for an Adult-Use Cannabis Business's request for an appeal, and the suspension or revocation of a cannabis public health permit shall be governed by the provisions of Division IX of this Chapter. No person shall conduct any activity regulated by this Section after a cannabis public health permit for such activity has been revoked or during the time a cannabis public health permit therefor has been suspended. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 3, 2021; ORD-18-0015 § 6(Exh. F), 2018)

Subdivision II. General Operating Requirements

5.92.510 Community Liaison.

A. Adult-Use Cannabis Businesses shall have a Community Relations Liaison designated at all times, who shall be twenty-one (21) years of age or older. Any Co-Located Cannabis Business or Commercial Cannabis Business conducting two (2) or more commercial cannabis activities within the same cannabis facility shall designate one (1) Liaison for the site.

B. The Liaison shall be responsible for receiving and responding to all concerns and complaints made to the City regarding the Adult-Use Cannabis Business and for making a good faith attempt to promptly address all concerns and resolve all complaints.

C. The Liaison shall respond by phone or e-mail within forty-eight (48) hours of any complaint(s) or concern(s) reported by a City official.

D. The Liaison's name and contact information shall be:

1. Publicly available, such as, available to any individual upon request, on the Adult-Use Cannabis Business's website, marketing material, or the technology platform used by the Adult-Use Cannabis Business.

2. Provided to the City Manager prior to operation of the business and within forty-eight (48) hours of a designation of a new Liaison.

3. Provided to all neighboring businesses located within one-hundred feet (100') of the permitted premises or cannabis facility, as measured in a straight line without regard to intervening structures, between the front doors of each establishment prior to opening.

4. Posted conspicuously, and in a conspicuously visible font size, on the main entry doors to the business. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.515 Display of permit and license.

Every Adult-Use Cannabis Business shall maintain a copy of its City permit and State license on display during business hours and in a conspicuous place so that the City permit and State license may be readily seen by all persons entering the premises. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.520 Age restrictions.

Individuals under twenty-one (21) years of age shall not be allowed on the premises of any Adult-Use Cannabis Business, except as pertaining to the sale of cannabis for medicinal use by a Dispensary to a medical patient or primary caregiver who is at least eighteen (18) years of age. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.525 No direct sales to the public.

Except as otherwise provided for in this Chapter and Chapter 5.90 of this Code for Dispensaries, no direct sales of cannabis goods to the public may occur upon a permitted premises of a Distributor, Cultivator, Manufacturer, or Testing Laboratory. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.530 Advertising and marketing.

A. All advertisements and marketing, including off-site advertising signs, on-premises signs, labels, and billboards by an Adult-Use Cannabis

Business shall comply with this Chapter, Title 21 of this Code, any regulations implemented by the State or any of its divisions or departments, and California Business and Professions Code Chapter 15 ("Advertising and Marketing Restrictions") of Division 10.

B. Not attractive to children. Advertisements and marketing may not be designed to appeal to children or encourage children to consume cannabis goods, contain any false or misleading statements, or make any misrepresentations.

C. Billboard advertising and marketing.

1. No person shall place, establish, keep, allow, maintain, or locate any advertisement or marketing for cannabis goods on any billboard located within a one thousand foot (1,000') radius of a public park, day care center, or public or private school (as defined in California Health and Safety Code Section 11362.768(h)).

2. The City hereby establishes a zero-foot (0') radius buffer for youth centers and playgrounds for any advertisements or marketing of cannabis goods on a billboard within the City by a Commercial Cannabis Business; therefore, there are no buffer distance requirements for youth centers or playgrounds for billboards advertising or marketing cannabis goods within the City. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.535 Waste management.

A. Obligation to comply. When managing cannabis goods, chemicals, hazardous or dangerous waste, Adult-Use Cannabis Businesses are obligated to obtain all required permits, licenses, or other clearances and comply with all orders, laws, regulations, or other requirements of other regulatory agencies, including, but not limited to, local health agencies, regional water quality control boards, air quality management districts or air pollution control districts, local land use authorities, and fire authorities.

B. The sale of cannabis waste is prohibited.

C. Storage of cannabis waste. All cannabis waste shall be stored in a secured waste receptacle or in a secured area on the permitted premises. For the purposes of this section, "secure waste receptacle" or "secured area" means that physical access to the receptacle or area is restricted to the permittee, employees of the permittee, or by the local agency or local agency franchised or contracted waste hauler only. Public access to the designated receptacle or area shall be strictly prohibited.

D. Before removing any cannabis waste from the premises for disposal, the Adult-Use Cannabis Business shall render cannabis goods unusable and unrecognizable in compliance with State and local laws or regulations.

E. Records of cannabis waste. Every Adult-Use Cannabis Business shall maintain accurate and comprehensive records at the premises regarding cannabis waste that accounts for, reconciles, and provides evidence of, all activity related to the generation and disposal or deposition of cannabis waste. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.540 Ventilation and filtration system.

A. Every Adult-Use Cannabis Business shall implement adequate ventilation system and odor control filtration measures to prevent odors from inside the cannabis facility from being detected outside the cannabis facility.

B. Certification of system. A licensed professional engineer shall certify that the system is capable of preventing odors from inside the cannabis facility from being detected outside the cannabis facility. The design of the ventilation and filtration system shall be based on industry-specific best control technologies and best management practices to effectively mitigate cannabis odors. The system shall use a range of odor mitigation practices to control odor-emitting activities, sources, and locations.

C. Training and maintenance. The Adult-Use Cannabis Business is responsible for regular maintenance to ensure the system remains functional and shall implement staff training procedures regarding use and maintenance of the system.

D. Records. All records relating to odor management shall be made available upon verbal or written request of the City Health Officer, including but not limited to:

1. Odor complaints received, actions taken by the business, and responses to the complaint; and

2. System installation, maintenance, and any equipment malfunctions. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.545 Discourage illegal, criminal, or nuisance activities.

A. Every Adult-Use Cannabis Business shall take reasonable steps to discourage persons on the Site of the permitted premises, and within any parking areas under the control of the Adult-Use Cannabis Business, from engaging in illegal, criminal, or nuisance activities. For purposes of this Section, "illegal, criminal, or nuisance activities" includes, but is not limited to, disturbances of the peace, public intoxication, drinking alcoholic beverages in public or on the site of the permitted premises, smoking or ingesting cannabis goods in public or on the site of the permitted premises, illegal drug activity, vandalism, obstruction of the operation of a another business, harassment of passersby, gambling, prostitution, loitering, public urination, lewd conduct, drug trafficking, excessive loud noise, or any other behavior that adversely affects or detracts from the quality of life for adjoining residents, property owners, or businesses.

B. Loitering prohibited. Loitering is prohibited on or around the premises or any area under control of the Adult-Use Cannabis Business. Adult-Use Cannabis Businesses shall prevent individuals from remaining on the premises or site of the Adult-Use Cannabis Business if they are not engaging in an activity directly related to the permitted operations of the Adult-Use Cannabis Business.

C. Property maintenance. The site, premises, and all associated parking areas, including the adjacent area under the control of the Adult-Use Cannabis Business and any sidewalk or alley, shall be maintained in an attractive condition and shall be kept free of obstruction, trash, litter, and debris.

D. Graffiti. Adult-Use Cannabis Businesses shall remove graffiti from the premises within forty-eight (48) hours of its occurrence.

E. Nuisances. Commercial cannabis activity shall not adversely affect the health or safety of the nearby residents by creating dust, glare, heat, noise, smoke, vibration, or other negative impacts, and shall not be hazardous due to use or storage of materials, processes, products, chemicals, or wastes. Commercial Cannabis Activity shall not adversely affect health, safety, or welfare of any persons engaged in the operation of the Adult-Use Cannabis Business. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.550 Recordkeeping.

A. Adult-Use Cannabis Businesses shall comply with all recordkeeping requirements, as set forth in this Chapter, California Business and Professions Code Section 26000 et seq., and all applicable regulations implemented and enforced by the State or any of its departments and divisions.

B. Every owner and operator of an Adult-Use Cannabis Business shall maintain legible, clear, adequate, and accurate books, records, and documentation, demonstrating that all cannabis goods have been obtained from, and are provided to, other State licensees, and shall detail all of the revenues and expenses of the business, and all of its assets and liabilities on the premises. All records shall be in English.

C. All required records shall be stored, preserved, and maintain on the premises for a minimum of (7) years. Mandatory records shall be stored in a secured area where the records remain protected from debris, moisture, contamination, hazardous waste, fire, or theft. Electronic records shall be secured and backed up in a manner that prevents unauthorized access and that ensures the integrity of the records is maintained.

D. Adult-Use Cannabis Businesses shall maintain a current register of the names and the contact information (including the address, e-mail

address and telephone number) of anyone owning or holding an interest in the Adult-Use Cannabis Business, and separately a register of all the officers, managers, employees, responsible persons, and volunteers currently employed or otherwise engaged by the Adult-Use Cannabis Business. The register required by this subsection shall be provided to the City Manager upon a verbal or written request.

E. Point-of-sale inventory control and reporting system.

1. Adult-Use Cannabis Businesses shall maintain a point-of-sale software inventory control and reporting system that accurately documents the present location, amounts, and descriptions of all cannabis goods for all stages of the growing, production, manufacturing, laboratory testing, distribution processes, sale, transfer, purchase, receipt, and delivery of cannabis goods, as set forth in California Business and Professions Code Section 26000 et seq. and any regulations implemented thereunder.

2. The software shall be capable of producing electronic shipping manifests, tracking all cannabis inventory in possession of the Adult-Use Cannabis Business, promptly identifying any discrepancy in the stock, and tracking cannabis from the customer back to its source in the event of a serious adverse event.

3. The system shall have the capability to produce historical transactional data for review by the City.

F. Track-and-Trace.

1. Tracking inventory. Adult-Use Cannabis Businesses shall promptly comply with any track-and-trace system requirements established by the State or any of its departments and divisions.

2. Every Adult-Use Cannabis Business is responsible for the accuracy and completeness of all data and information entered into the track-and-trace system. Data entered into the track-and-trace system shall be accurate. Inaccuracies in the track-and-trace system, if not corrected, may result in an enforcement action against the Adult-Use Cannabis Business. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.555 Notification to City.

A. Breaches of security. Every Adult-Use Cannabis Business shall notify the City Manager and the Long Beach Police Department in writing, within twenty-four (24) hours after discovering any of the following:

1. Significant discrepancies identified in inventory.

2. Suspected diversion, theft, loss, or any other criminal activity pertaining to the operation of the Adult-Use Cannabis Business and cannabis goods.

3. Discovering diversion, theft, loss, or any other criminal activity by any individual authorized to engage in the operation of the Adult-Use Cannabis Business and pertaining to the operations of the business.

4. The loss or unauthorized alteration of records related to cannabis goods, customers, or employees of the Adult-Use Cannabis Business.

5. Any other breach of security.

6. All written notifications regarding a breach of security shall include the date and time of occurrence of theft, loss, or criminal activity and a description of the incident including, where applicable, and the item(s) that were taken or lost.

B. Criminal acts.

1. Adult-Use Cannabis Businesses shall notify the City Manager in writing, either by mail or by electronic mail, of any felony conviction against any owner or manager of the Adult-Use Cannabis Business within forty-eight (48) hours of the conviction.

2. The written notification to the City Manager shall include the date of conviction, the court docket number, the name of the court in which the person was convicted, and the specific offense(s) for which the person was convicted.

C. Change in permit or license status.

1. Adult-Use Cannabis Businesses shall notify the City Manager in writing within ten (10) days, either by mail or by electronic mail, of any denial, suspension, modification, revocation, or expiration or any applicable State or local license and/or permit required for the operation of the Adult-Use Cannabis Business.

2. The written notification shall include the name of the agency involved, a written explanation of the proceeding or enforcement action, and the specific violation(s) that led to the discipline or revocation. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

Subdivision III. Cannabis Goods

5.92.610 Handling of cannabis goods.

A. Every person that handles cannabis goods shall comply with the provisions of all relevant State and local laws regarding the storage, preparation, handling, packaging, preparation, distribution, and sale of food.

B. Employee health and handling cannabis goods.

1. To reduce the likelihood of foodborne disease transmission, individuals who are suffering from symptoms associated with acute gastrointestinal illness, or are known to be infected with a communicable disease that is transmissible through foodstuffs, are prohibited from handling cannabis goods until they are free of that illness or disease, or are incapable of transmitting the illness or disease through cannabis goods.

2. The City Health Officer has authority to exclude any Adult-Use Cannabis Business employee that handles cannabis goods from any Adult-Use Cannabis Business if the employee is diagnosed with an illness caused by an infectious agent, and the employee is either symptomatic and still considered infectious, or is not experiencing symptoms of the illness associated with that agent but is still considered infectious.

3. For purposes of this Section, "illness caused by an infectious agent" means a condition caused by any of the following infectious agents: Hepatitis A virus; Salmonella typhi; Salmonella spp; Shigella spp; Entamoeba histolytica; Enterohemorrhagic or shiga toxin producing Escherichia coli; Norovirus; and any other communicable diseases that may be transmitted to others through the handling of cannabis goods.

4. The Adult-Use Cannabis Business may remove a restriction placed on an employee upon the resolution of symptoms, as reported by an employee, if the employee states that he or she no longer has any symptoms of an acute gastrointestinal illness.

5. Only the City Health Officer may remove exclusions or restrictions, or both, related to diagnosed illnesses due to infectious agents specified in this Section after the City Health Officer provides a written clearance stating that the excluded or restricted employee is no longer considered infectious. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.620 Storage of cannabis goods.

A. Every Adult-Use Cannabis Business shall store currency and cannabis goods, including all living cannabis plants, in a manner that prevents diversion, theft, loss, hazards, contamination, and nuisances.

B. Cannabis goods shall be stored separate and apart from employee break rooms, changing facilities, or bathrooms.

C. Except for limited amounts of cannabis goods used for display purposes, samples, or immediate sale, cannabis goods that do not require refrigeration, and currency, shall be stored in a limited-access area, such as a secured and locked safe room, or in a locked safe or vault, that is secured to the structure of the cannabis facility.

D. Any refrigerator, refrigerated storage, or freezer used for storage of cannabis products shall be locked and secured to the structure of the cannabis facility in a limited-access area.

E. All extractions, concentrates, infusions, components, and edible cannabis products intended for human consumption and capable of supporting the growth of undesirable microorganisms shall be refrigerated at temperatures of 41°F continually, unless otherwise approved by the City Health Officer. Adult-Use Cannabis Businesses shall follow the Manufacturer's requirements for safe storage of such cannabis products.

F. Refrigeration equipment standards. All refrigerators, refrigerated storage, or freezers used for commercial cannabis activity under this Chapter shall:

1. Meet National Sanitation Foundation (NSF) or American National Standards Institute (ANSI) standards or an equivalent.

2. Be equipped with an NSF thermometer or temperature-recording device that is accurate to plus or minus 2°F and installed in a location to indicate the air temperature in the warmest part of the unit and to be readily visible.

3. Be approved by the City Health Officer prior to use. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.630 Laboratory testing of cannabis goods.

Cannabis goods may not be sold or transferred to a Dispensary, or released for retail sale, unless a representative sample of the cannabis goods have undergone and passed all testing pursuant to California Business and Professions Code Section 26000 et seq. and any applicable regulations implemented and enforced by the State or any of its divisions or departments. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.640 Quality assurance of cannabis goods.

A. Internal quality assurance testing. Notwithstanding any of the provisions of this Chapter, an Adult-Use Cannabis Business may conduct internal quality assurance testing of any cannabis goods as part of its reasonable business operations. This provision shall not be interpreted to authorize or permit cross-licensing of a Laboratory with any other type of permit under this Chapter or with respect to State law.

B. Quality assurance testing by the City.

1. The City Health Officer may collect and analyze samples or specimens of cannabis goods, including any living cannabis plants and any components used in cannabis products, from any premises during business hours, or any reasonable time, without notice and at no cost to the Health Department, to verify compliance with State and local laboratory testing, packaging, and labeling requirements for cannabis goods.

2. The City Health Officer shall provide the Adult-Use Cannabis Business with a receipt or documentation for any samples or specimens of cannabis goods collected from an Adult-Use Cannabis Business prior to leaving the permitted premises. A copy of the results of the sample analysis shall be provided to the Adult-Use Cannabis Business.

3. The City Health Officer may take any enforcement action necessary to protect the health, safety, and welfare of the public depending on the testing results and analysis of the sample(s) or specimen(s) of cannabis goods collected at a permitted premises. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.650 Adulterated or misbranded cannabis goods.

A. When the City Health Officer has evidence that cannabis goods in possession of an Adult-Use Cannabis Business are adulterated or misbranded, the City Health Officer may notify and order the Adult-Use Cannabis Business to immediately cease any commercial cannabis activity related to all cannabis goods that have been identified as being potentially adulterated or misbranded.

B. Upon confirmation from the State, including any of its departments or divisions, that the identified cannabis goods are adulterated or misbranded, the City Health Officer may issue orders to the Adult-Use Cannabis Business regarding the required movement, segregation, isolation, or destruction of the adulterated or misbranded cannabis goods, and may order those to be held in place, embargoed, or quarantined.

C. It is unlawful for any person to move, or allow to be moved, any cannabis goods that are subject to an order to quarantine, embargo, or hold cannabis goods in place unless that person has first obtained written authorization from the City Health Officer and/or State Department of Public Health. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

Subdivision IV. Security

5.92.710 Security standards.

Every Adult-Use Cannabis Business shall implement security measures to prevent unauthorized entrance into areas containing cannabis goods

and currency, prevent the theft of cannabis goods and currency from the premises, and to protect the physical safety of employees in compliance with this Chapter, State law, and any regulations implemented and enforced by the State or any of its divisions or departments. These security measures shall include, but shall not be limited to, all of the provisions of this Subdivision. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.715 Limited-access areas.

Adult-Use Cannabis Businesses shall establish limited-access areas accessible only to authorized employees of the Adult-Use Cannabis Business. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.720 Identification badges.

All employees of an Adult-Use Cannabis Business shall display or wear a laminated or plastic-coated identification badge at all times while engaging in commercial cannabis activity, including during transport and delivery of cannabis goods. At a minimum, the identification badge shall include:

A. The Adult-Use Cannabis Business's "doing business as" name, City permit number, and State license number;

B. The first name of the individual;

C. Any employee number exclusively assigned to that individual for identification purposes; and

D. A color photograph of the individual that clearly shows the full front of the individual's face that is at least one inch (1") in width and one and a half inches (1.5") in height. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.725 Secure transportation area.

A. Adult-Use Cannabis Businesses shall implement procedures for safe and secure transportation and delivery of cannabis goods and currency in accordance with State and local laws and regulations.

B. Adult-Use Cannabis Businesses shall have an area of the premises designed for the secure transfer of cannabis goods from the cannabis facility to a vehicle for transportation or delivery, wherever possible.

C. Any individual or employee transferring cannabis goods from a cannabis facility to a vehicle for transportation or delivery shall be accompanied by a security escort during the transfer, if the cannabis facility does not have an area designed for the secure transfer of cannabis goods from the cannabis facility to a vehicle for transportation or delivery. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.730 Digital video surveillance system.

A. Every Adult-Use Cannabis Business shall implement an operational digital video surveillance system at the premises that meets or exceeds the following criteria:

1. The digital video surveillance system with a minimum video camera resolution of 1280 × 1024 pixels.

2. Each video surveillance camera shall record continuously twenty-four (24) hours per day, seven (7) days a week, and at a minimum of fifteen (15) frames per second (FPS).

3. The location and position of each camera shall be capable of recording images of the area under surveillance, in any light condition, to allow facial feature identification of persons in the following locations on the premises:

a. In interior and exterior areas where cannabis goods or currency are present at any given time.

b. In the immediate interior and exterior areas of doors, windows, or other avenues of potential access.

c. Areas open to the public, including a full view of public right-of-way and any parking lot under the control of the Adult-Use Cannabis Business.

d. Point-of-sale locations and areas where cannabis goods are displayed for sale at a Dispensary, including but not limited to, a retail area.

e. Any other areas as required by this Chapter, State law, or any regulations implemented and enforced by the State or any of its divisions or departments.

B. Each camera shall be permanently mounted and in a fixed location and, to the extent reasonably possible, shall be installed in a manner that prevents intentional obstruction, tampering with, and/or disabling the camera.

C. All video surveillance equipment shall have sufficient battery backup to support a minimum of four (4) hours of recording in the event of a power outage.

D. Every video surveillance system shall be equipped with a failure notification system that provides prompt notification to the Adult-Use Cannabis Business of any prolonged surveillance interruption and/or the complete failure of the surveillance system.

E. Surveillance video recordings shall clearly and accurately display the date and time. Time is to be measured in accordance with the United States National Institute of Standards and Technology standards for the Pacific Time zone.

F. Security notice required. The permitted premises shall have a sign posted in a conspicuous place near each monitored area on the interior and exterior of the premises and shall not be less than twelve inches (12") wide and twelve inches (12") long, composed of letters not less than one inch (1") in height, stating "All Activities Monitored by Video Camera" or "This Premises is Being Digitally Recorded," or otherwise advising all persons entering the premises that a video surveillance and camera recording system is in operation at the premises and recording all activity as provided in this Chapter. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.735 Security records.

A. Surveillance recordings of every Adult-Use Cannabis Business are subject to inspection by the City Manager, or any City Manager designee, without a search warrant, court order, or subpoena. The Adult-Use Cannabis Business shall send, or otherwise provide, copies of the recordings immediately upon verbal request or within a time specified by the City Manager.

B. Secure storage. To prevent tampering or theft, all surveillance recordings and monitoring equipment shall be kept in a secure limited-access area of the permitted premises.

C. At a minimum, every Adult-Use Cannabis Business shall maintain the following security records at the premises:

1. Surveillance video recordings shall be maintained for a minimum of ninety (90) days and on an IP-configurable Digital Video Recorder (DVR) capable of producing a still photograph in color from any live or recorded camera image at the premises and capable of exporting the images in TIFF, BMP, or JPG format.

2. A map of the camera locations, the direction of camera coverage, and assigned camera numbers.

3. Surveillance equipment maintenance activity logs and operating instructions for the surveillance equipment.

4. A user authorization list of individuals who have access to the surveillance system, including, but not limited to, the secured area for recording and monitoring equipment and physical media and surveillance recording storage devices. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.740 Security alarm system.

Every Adult-Use Cannabis Business shall implement an operational security alarm system at the premises that meets or exceeds the following criteria:

A. The security alarm system shall be operated, maintained, monitored by, and responded to by a security company staffed twenty-four hours (24) a day, seven (7) days a week and licensed by the Department of Consumer Affairs, Bureau of Security and Investigative Services.

B. The security alarm system shall include sensors to detect all points of entry and exit, from all limited-access and secured areas, all roof hatches, and all windows.

C. Every Adult-Use Cannabis Business shall obtain a security alarm system permit pursuant to Chapter 5.12 of this Code. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.745 Commercial-grade locks.

Every Adult-Use Cannabis Business shall secure the following areas using commercial-grade,

non-residential door locks, roof hatches, and window locks in a manner that prevents free and unauthorized access:

A. All points of ingress and egress to a premises.

B. Limited-access areas.

C. Areas where cannabis goods, living cannabis plants, cannabis waste, and currency are stored and/or present at any given time.

D. Areas where surveillance equipment and records are stored. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.750 Security barriers.

A. Any security barriers installed on the windows or the doors of the premises shall be installed only on the interior of the building and in compliance with all City Building, Zoning, and Fire Codes. Security bars are discouraged for all Adult-Use Cannabis Businesses and shall not be minimally visible from the public right-of-way.

B. Security barriers shall meet the following criteria:

1. Only open grill design security systems located on the inside of the building shall be permitted on elevations visible from the street.

2. Open grill design security systems shall be primarily transparent with not less than seventy-five percent (75%) visibility from the street.

3. Solid roll-down security doors are prohibited unless part of a vehicle loading bay.

4. Interior security gates shall be opened and fully retracted during the hours of operation. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.755 Remain secure during power outage.

Every Adult-Use Cannabis Business shall have the capability to remain secure during a power outage. Adult-Use Cannabis Businesses shall also ensure that all access doors on the premises are not solely controlled by an electronic access panel, to ensure that locks are not released during a power outage. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.760 Visibility.

A. From a public right-of-way, there shall be no exterior evidence of cannabis goods, graphics depicting cannabis goods, or commercial cannabis activity, except for any signage authorized by this Code. Premises located within PD-30 shall also be designed to comply with Downtown Pedestrian-Oriented transparency standards (if applicable), whereby clear, nonreflective display windows or doors shall comprise at least sixty percent (60%) of the ground-floor street façade of active, pedestrian-oriented uses.

B. Exterior lighting. Every Adult-Use Cannabis Business shall implement exterior lighting security measures including, but not limited to:

1. All exterior light fixtures shall be vandal resistant, installed on exterior walls, and shall be the type of fixture with proper cut-offs to avoid any light pollution, including but not limited to, urban sky glow, light trespass, glare, and clutter.

2. Exterior lighting shall clearly illuminate the building address, all parking, driving, and walking surfaces, exterior doors, and all window areas during the hours of darkness.

3. Any broken or burned out lights shall be replaced within seventy-two (72) hours. (ORD-23-0026 § 2, 2023; ORD-22-0015 § 4, 2022; ORD-21-0021 § 2, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.765 Building design.

The nature and operations of Adult Use Cannabis Businesses have the potential to result in building design changes that represent a departure from typical building appearances. The following criteria is intended to minimize impacts to neighborhood character caused by building design changes resulting from remodeled and new premises for Adult-Use Cannabis Business and commercial cannabis activities:

A. Building Design must meet any applicable criteria in Title 21 of this Code, Specific Plans, or Planned Developments.

B. Any blank building facade on an existing industrial or commercial building over twenty-five feet (25') visible from the street shall be prohibited

and must incorporate architectural features, such as building plane breaks, three-dimensional elements, transparent windows, doors, changes in color and materials and landscaping that result in a building with articulation.

C. Windows.

1. On any new commercial or industrial building elevation fronting the street, windows shall comprise at least thirty percent (30%) of the ground floor building elevation. On all other ground floor elevations visible from the street, windows shall comprise at least twenty-five percent (25%) of the building elevation.

2. Existing buildings located on public right of ways classified as neighborhood connectors or greater, with elevations visible from the public right of way, shall maintain a minimum window area of at least twenty-five percent (25%) of said building elevation when incorporated with other architectural features and treatments.

3. An identifiable entrance to the cannabis facility shall be visible from the street.

4. Windows along the street-facing frontage shall be transparent. Such glass should be clear with an exterior daylight reflectance of not more than eight percent (8%).

5. Where feasible, the storefront window shall provide visibility to the tenant space. Where visibility to the tenant space by means of the storefront window is not feasible due to security needs of the permittee's operation, the creation of a storefront window display may be permitted. Alternatively, storefront windows may be constructed of bullet resistant glass.

6. Window display areas shall have a minimum depth of at least forty-two inches (42"), not including walls. Display windows shall be permitted for up to one-hundred percent (100%) of the building storefront window area. The window display area shall be maintained with a creative attractive window display including but not limited to display of artwork, non-cannabis plants, and the like.

7. Notwithstanding the foregoing requirements of Section 5.92.765(C), premises located within PD-30 shall be designed to comply with Downtown Pedestrian transparency standards (as applicable), whereby clear, nonreflective display windows or doors shall comprise at least sixty percent (60%) of the ground-floor street façade of active, pedestrian-oriented uses. (ORD-23-0026 § 3, 2023; ORD-22-0015 § 4, 2022; ORD-21-0021 § 3, 2021; ORD-20-0012 § 1, 2020; ORD-18-0015 § 6(Exh. F), 2018)

Subdivision V. Prohibited Activities

5.92.810 Consumption of cannabis prohibited; signage required.

A. Cannabis goods shall not be consumed by any individual on the premises of an Adult-Use Cannabis Business. The term "consumed" includes, but is not limited to, vaporizing, inhaling, ingesting, smoking, eating, or otherwise introducing cannabis goods into the human body.

B. Adult-Use Cannabis Businesses shall post a sign in a conspicuous place near the interior entrance to the premises, that shall be visibly posted with a clear and legible notice with the following language: "Smoking, vaporizing, ingesting, or consuming cannabis, cannabis products, tobacco, or alcohol on these premises, or in their vicinity, is prohibited and a violation of the Long Beach Municipal Code." (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.820 Alcohol or tobacco prohibited.

No person shall cause or permit the sale, dispensing, storage, distribution, or consumption of alcohol or tobacco products on or about the premises of an Adult-Use Cannabis Business. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.830 Physician evaluations prohibited.

Adult-Use Cannabis Businesses shall not:

A. Permit a physician to evaluate existing or potential medicinal cannabis patients on its premises by any means, or permit a physician to provide a physician's recommendation on its premises, including, but not limited to: a physician that provides evaluations or recommendations in-person from the permittee's site or on-site via the internet,

or a physician that provides recommendations via the internet, fax, electronic means, or by any other means from the permittee's site.

B. Enter into an agreement with, employ, provide, or offer to provide, any form of remuneration to, a physician who provides physician's recommendations for medicinal cannabis.

C. Advertise or market services for a physician who provides physician's recommendations for medicinal cannabis. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.840 Weapons or firearms prohibited.

Weapons and firearms are prohibited on the premises of an Adult-Use Cannabis Business. This provision does not apply to public officials engaged in official duty or uniformed security personnel or patrol hired or contracted by an Adult-Use Cannabis Business. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.850 Generators prohibited.

The use of generators by any Adult-Use Cannabis Business is prohibited, except as short-term temporary emergency back-up systems. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.860 Outdoor storage of cannabis goods prohibited.

No outdoor storage of cannabis goods is permitted at any time. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 4, 2021; ORD-18-0015 § 6(Exh. F), 2018)

Editor's note—ORD-21-0023 §§ 4—6, adopted July 13, 2021, deleted former § 5.92.860 entitled "Subletting prohibited," which derived from ORD-18-0015 § 6(Exh. F), of 2018, and further amended the Code by renumbering §§ 5.92.870 and 5.92.880 as §§ 5.92.860 and 5.92.870, as herein set out.

5.92.870 Drive-through services prohibited.

Drive-through services or walk-up window services where cannabis goods are sold, or made available to any person, that are operated in conjunction with any Adult-Use Cannabis Business are prohibited. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 5, 2021; ORD-18-0015 § 6(Exh. F), 2018)

Note—See Editor's Note above.

DIVISION IV. DISPENSARY OPERATING CONDITIONS

In addition to the general operating requirements set forth in Division III of this Chapter, this Division provides additional requirements for Dispensaries and delivery services. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.910 Compliance.

Dispensaries may sell, distribute, dispense, provide, deliver, or transport Cannabis, only in accordance with all applicable laws and regulations, including but not limited to, this Code, any regulations implemented by the Department of Cannabis Control, California Business and Professions Code Sections 26000 et seq., and all other applicable State, federal and local laws and regulations. (ORD-24-0024 § 2, 2024; ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.915 Hours of operation.

Dispensaries may only be open to the public between the hours of 9:00 a.m. to 9:00 p.m. up to seven (7) days per week. All deliveries of cannabis goods to customers by a Dispensary shall be completed by 10:00 p.m. (ORD-22-0015 § 4, 2022; ORD-20-0042 § 2, 2020; ORD-18-0015 § 6(Exh. F), 2018)

5.92.920 Security personnel.

A. Dispensaries shall hire or contract for uniformed security personnel to provide twenty-four (24) hour random security patrols of the premises to monitor site activity, control loitering and site access, and to serve as a visual deterrent to unlawful activities. At a minimum, uniformed security personnel shall be generally located at an indoor guard station on the premises during all hours of operation and security-patrolling services shall patrol the premises during all hours the Dispensary is closed to the public.

B. All uniformed security personnel hired or contracted by a Dispensary shall be licensed with the State of California Bureau of Security and Investigative Service, and shall comply with requirements in California Business and Professions Code Chapters 11.4 and 11.5 of Division 3. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.925 Protocols for individuals entering the premises.

A. No person shall be permitted to enter a Dispensary without government-issued identification. Dispensaries shall not provide cannabis goods to any person, whether by purchase, trade, gift, or otherwise, who does not possess a valid government-issued identification and who does not meet the age requirements of this Chapter.

B. Electronic age verification device required. Dispensaries shall verify the proof of age of every person entering the business with an electronic age verification device, prior to entry of the retail area. The electronic age verification device may be mobile or fixed, and shall be able to retain a log of all scans that includes the following information: date, time, and age. Said log shall be kept for a minimum of one-hundred and eighty (180) business days and all records shall be made available to the City Manager upon request. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.930 Point-of-sale tracking required.

A Dispensary shall facilitate the dispensing, making available, sale, and delivery of cannabis goods with a technology platform that uses point-of-sale technology to track, and database technology to record and store, the following information for each transaction involving the exchange of cannabis goods between the Dispensary and customer:

A. The date and time of transaction.

B. The first name and employee number of the Dispensary employee who processed the sale of cannabis goods on behalf of the Dispensary.

C. A list of all the cannabis goods purchased, including the quantity purchased.

D. The total amount paid for the sale, including the individual prices paid for cannabis or cannabis products purchased, and any amounts paid for taxes. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.935 Taxes.

Transactions for Dispensaries shall be taxed at the non-medical marijuana tax rate pursuant to Section 3.80.261.C.2 of this Code, unless the Dispensary is able to prove by reasonable and verifiable standards which portion of the gross receipts are tied to the sale of the adult-use cannabis goods and which portion are tied to the sale of medicinal cannabis goods. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.940 Cannabis goods.

A. A Dispensary shall not make any cannabis goods available for sale or delivery to a customer unless the cannabis goods were received from a State licensed Distributor.

B. Prior to making cannabis goods available to customers, Dispensaries shall ensure that all cannabis goods dispensed, sold, delivered, or made available by the Dispensary, at a minimum:

1. Are packaged and sealed in tamper-evident packaging that includes a unique identifier, such as a batch number and lot number or bar code, to identify and track the cannabis goods.

2. For manufactured cannabis products, that the product complies with all requirements of California Business and Professions Code Section 26130 and all other applicable laws and regulations.

3. The Dispensary has verified that the cannabis goods have not exceeded their expiration or sell-by date, if one is provided.

4. For edible cannabis product, that the products comply with State packaging and labeling requirements, including, but not limited to:

a. Edible cannabis products shall not exceed 10 milligrams of tetrahydrocannabinol (THC) per serving.

b. The THC content for the cannabis product in its entirety is printed on the package.

c. All applicable requirements pursuant to California Business and Professions Code Sections 26120 and 26121 and any regulations promulgated thereunder.

C. Exit packaging. Cannabis goods purchased by a customer shall not leave the Dispensary's premises unless placed in an opaque (not see-through) exit package.

D. Secure storage of cannabis goods. Cannabis goods that are not used for display purposes or immediate sale shall be stored in a limited-access area, such as a secure and locked room, safe, or vault, and in a manner reasonably designed to prevent diversion, theft, and loss. It is unlawful, and a violation of this Chapter for a Dispensary to store cannabis goods in the retail area after the close of business.

E. Edible cannabis products.

1. Dispensaries may only dispense, sell, provide, or make available those edible cannabis products authorized by the State Department of Public Health and the City Health Officer.

2. The sale, distribution, and delivery of edible cannabis products shall be conducted in a manner that complies with all applicable food safety laws for the protection of humans consuming cannabis.

F. No sales of expired cannabis products. Dispensaries are prohibited from selling any expired cannabis goods. It is unlawful for any person to alter, edit, or adjust, in any manner, an expiration date on any item or cannabis product once affixed by its Manufacturer. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.945 Daily limit per person.

No Dispensary shall sell, distribute, or deliver more than 28.5 grams of cannabis or eight (8) grams of concentrated cannabis, including concentrated cannabis contained in cannabis products, to the same customer in the same business day. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.950 No free adult-use cannabis goods.

A Dispensary shall not provide free adult-use cannabis goods to any person. A Dispensary shall not allow individuals that are not employed by the Dispensary to provide free adult-use cannabis goods to any person on the permitted premises. In this Section, "free adult-use cannabis goods" shall mean any amount of cannabis goods provided to any person without cost or payment in exchange of any other thing of value. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.955 Interior signage required.

Dispensaries shall post the following notice(s), on a separate sign, or by adding the following notices to the interior sign required pursuant to Section 5.90.060 of this Code, conspicuously and where an average customer is likely to clearly view said notice within the permitted premises:

A. "Smoking, vaporizing, ingesting, or consuming cannabis, cannabis products, tobacco, or alcohol on these premises, or in their vicinity, is prohibited and a violation of the Long Beach Municipal Code."

B. "Patrons must immediately leave the premises and should not consume cannabis goods until at home or in an equivalent private location."

C. "CALIFORNIA PROP. 65 WARNING: Smoking of cannabis and cannabis-derived products will expose you and those in your immediate vicinity to cannabis smoke. Cannabis smoke is known by the State of California to cause cancer."

D. Consistent with this Subsection, such signage is prohibited on exterior windows and storefronts on ground-floor street facades, and premises located within PD-30 are furthermore subject to the Downtown Pedestrian-Oriented transparency standards (if applicable), whereby clear, nonreflective display windows or doors shall comprise at least sixty percent (60%) of the ground-floor street façade of active, pedestrian-oriented uses. (ORD-23-0026 § 4, 2023; ORD-22-0015 § 4, 2022; ORD-21-0021 § 4, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.960 Delivery services.

In addition to the requirements set forth in this Chapter for Dispensaries, the delivery of cannabis goods shall be subject to the following requirements:

A. Compliance. Delivery services shall be conducted in accordance with any relevant State and local laws and regulations, any applicable local laws in the delivery location, and any conditions imposed upon a Dispensary.

B. Delivery services may operate as a part of, and in conjunction with, a Dispensary with a storefront open to the public during business hours and permitted pursuant to this Chapter and Chapter 5.90 of this Code and any applicable State laws and regulations.

C. Any application for a Dispensary shall include a statement as to whether the proposed use will include delivery of cannabis goods to customers.

D. Vehicle standards. Dispensaries shall only allow delivery of cannabis goods in a vehicle that:

1. Is capable of securing (locking) the cannabis goods during transportation.

2. Is capable of being time and/or temperature controlled, if perishable cannabis goods are being transported.

3. Does not display advertising or symbols visible from the exterior of the vehicle that suggest the vehicle is used for cannabis delivery or affiliation with a Dispensary.

4. Shall only be operated by the delivery employee of the Dispensary.

5. Only the licensee or an employee of the Dispensary for whom delivery is being performed shall be in the delivery vehicle.

E. Inspections. Any motor vehicle used by a Dispensary to deliver cannabis goods is subject to inspection by the City Manager or Chief of Police and may be stopped at the premises or during the delivery for inspection.

F. Delivery employees. Every delivery employee of a Dispensary shall be at least twenty-one (21) years of age and shall have a valid California Driver's License.

G. Documentation during transport. Delivery employees of a Dispensary shall carry a physical or electronic copy of the delivery request receipt with details regarding the delivery, a copy of the Dispensary's current permits and/or licenses required by the State and City, the employee's government-issued identification, and an identification badge provided by the Dispensary. All documentation shall be made available upon request to the City Manager or Chief of Police.

H. Dispensaries shall maintain a database, and provide to the City Manager upon verbal or written request, a list of delivery employees and vehicles authorized to conduct deliveries on behalf of the Dispensary.

I. Delivery employees shall personally verify, for each individual transaction, that the identity of the customer receiving cannabis goods from the Dispensary is the same as the person who ordered the delivery, and that said person is twenty-one (21) years of age or older, via the presentation of a valid government-issued identification.

J. Limitations.

1. While making deliveries, a Dispensary's delivery employee shall not carry cannabis goods worth more than limits imposed by the State at any time. This value shall be determined using the current retail price of all cannabis goods carried by the delivery employee.

2. Direct route only. Except where a delivery employee requires rest, fuel, vehicle repair, or where the road conditions make the continued use of the road unsafe, impossible, or impracticable, a delivery employee may only travel to and from the Dispensary, to the delivery address, and between delivery addresses while delivering cannabis goods.

3. Dispensaries and delivery employees may only deliver cannabis goods to customers within a city or county that does not expressly prohibit such delivery by ordinance.

4. Consumption prohibited. No person shall consume or otherwise ingest cannabis goods, alcohol, any controlled substance, or intoxicants while transporting or delivering cannabis goods.

5. The Dispensary shall prepare a delivery request receipt for each delivery of cannabis goods that shall include the following:

a. The name and address of the Dispensary;

b. The first name and employee number of the Dispensary's delivery employee who delivered the order;

c. The first name and employee number of the Dispensary's employee who prepared the order for delivery;

d. The first name of the customer and a Dispensary-assigned customer number for the person who requested the delivery;

e. The date and time the delivery request was made;

f. The delivery address;

g. A detailed description of all cannabis goods requested for delivery. The description shall include the weight, volume, or any other accurate measure of the amount of all cannabis goods requested;

h. The total amount paid for the delivery, including any taxes or fees, the cost of the cannabis goods, and any other charges related to the delivery; and

i. Upon delivery, the date and time the delivery was made, and the signature of the customer who received the delivery.

6. A vehicle used for the delivery of cannabis goods shall be outfitted with a dedicated Global Positioning System (GPS) device for identifying the geographic location of the delivery vehicle in compliance with all applicable State laws and regulations.

a. The dedicated GPS device must be owned by the Dispensary and used for delivery only. A personal or business phone or tablet is not an acceptable GPS device.

b. The device shall be either permanently or temporarily affixed to the delivery vehicle, shall remain active, and inside of the delivery vehicle at all times during delivery.

c. At all times, the Dispensary shall be able to identify the geographic location of all delivery vehicles that are making deliveries for the Dispensary and shall provide that information to the City Manager or Chief of Police upon request. The history of all locations traveled to by a delivery employee while engaging in delivery shall be maintained by the licensee for a minimum of ninety (90) days.

K. All cannabis and all cannabis products being delivered must be obtained from the site of the licensed Dispensary or Delivery-Only Dispensary that is authorized to deliver cannabis. No cannabis or cannabis products may be delivered from any other facility, such as a separate storage facility or a cannabis product manufacturing facility. Loading and unloading of cannabis products must only take place within the designated and approved secured loading area.

L. Deliveries Facilitated by Technology Platforms. A delivery license retailer shall not sell or otherwise transfer any cannabis goods to a customer through the use of an unlicensed third party, intermediary business, broker, or any other business or entity. (ORD-24-0024 § 3, 2024; ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.965 Responsible Vendor Training Pilot Program.

A. Purpose and Intent. Recognizing the potential harms and public health implications associated with cannabis use, the purpose of this Section is to promote public health and safety to reduce the likelihood of the problematic use of cannabis by proactively requiring that all customer-facing employees and managers of Dispensaries learn the necessary skills to protect customers, the public, employees of the Dispensary, and Dispensaries through a Responsible Vendor Training Program.

B. Compliance. Every customer-facing manager and employee of a permitted Dispensary shall enroll in the Department of Health and Human Services' standardized training for Dispensaries within ninety (90) days of the establishment of the City's Responsible Vendor Training Pilot Program. Upon completion of such training, employees and managers shall receive written confirmation from the Department of Health and Human

Services of successful completion of the program. Dispensaries shall keep a copy of said written confirmation on the permitted premises for every customer-facing employee and manager.

C. New employees and managers. Any newly hired manager or employee of a permitted Dispensary shall successfully complete the Responsible Vendor Training Pilot Program within sixty (60) days of said individual's first day of employment.

D. Renewal of Training. After initial successful completion of the Responsible Vendor Pilot Training Program, every manager and employee of a Dispensary shall successfully complete the Responsible Vendor Training Pilot Program every twenty-four (24) months.

E. Online or in-person training is at the discretion of the Department of Health and Human Services. Nothing in this Section shall prevent the City from becoming a training provider under any similar program for Dispensaries implemented by the State.

F. Within three (3) years of the establishment of the program, the City Council will consider the available data and determine whether and how to continue the program. This Section shall remain in effect until revoked by the City Council. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

DIVISION V. CULTIVATION OPERATING CONDITIONS

In addition to the general operating requirements set forth in Division III of this Chapter, this Division provides additional requirements for Cultivators. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1010 Compliance.

A. Cultivation shall always be conducted in accordance with State and local laws and regulations related to cultivation, zoning, grading, electricity, water usage, water quality, fish and wildlife habitat protection, wastewater discharges, pesticides, and fertilizers, handling and storage of gases, and employee safety.

B. Cultivation shall always be conducted in such a way as to ensure the health, safety, and welfare of the public, the employees working at the cultivation site, neighboring properties, to protect the environment from harm to waterways, fish, and wildlife; to ensure the security of the cannabis; and to safeguard against the diversion of cannabis for unlicensed purposes. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1015 Outdoor cultivation prohibited.

All cultivation shall occur indoors, and only on a site holding a valid Adult-Use Cannabis Business Permit from the City pursuant to this Chapter. All outdoor or mixed light cultivation is prohibited, including but not limited to, the use of greenhouses. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1020 Maximum canopy size.

A. The total canopy size on one (1) premises shall not exceed the maximum number of square feet authorized by State license classifications Type 1A, Type 1C, Type 2A, Type 3A, and Type 4.

B. The total canopy size on one (1) premises shall not exceed the maximum number of square feet identified in the application and authorized by the Adult-Use Cannabis Business Permit. Permittees shall obtain written permission from the City prior to engaging in any activity that results in an increase of the square feet of maximum canopy authorized by the Adult-Use Cannabis Business Permit. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1025 Extension cords prohibited.

The use of extension cords to supply power to any electrical equipment used in cultivation is prohibited. All electrical equipment used in cultivation shall be plugged directly into a wall outlet or otherwise hardwired. (ORD-22-0015 § 4, 2022)

5.92.1030 Interior lighting.

All lighting used for indoor cultivation shall be fully shielded, downward casting, and shall not spill over onto structures, other properties, or into the night sky. Indoor cultivation lighting shall be

contained so that little to no light escapes and any light that escapes from the cultivation site shall be at a level that is not visible from neighboring properties between sunset and sunrise. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1035 Environmental control systems.

A. In additional to the general odor control and ventilation requirements in Section 5.92.540, every Cultivator shall implement environmental control systems to minimize and/or prevent the likelihood of mold and mildew growth. Cultivators shall regularly test for mold and mildew within the cultivation site.

B. Environmental control systems at a cultivation site shall include a range of environmental control technologies and practices to control humidity levels, illumination, heating, cooling, air circulation, and ventilation.

C. Compatibility with odor prevention and ventilation systems. Cultivators shall implement an environmental control system that is adequately compatible with any odor control prevention and ventilation systems at the cultivation site. For purposes of this Section, "adequately compatible" means that any environmental control systems and odor control systems operating at the cultivation site operate concurrently to prevent cannabis odors from being detected outside the cultivation site, while still allowing for the permittee to successfully cultivate. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1040 Water source.

Cultivators shall comply with California Water Code Section 13149 and any implementing regulations, policies, or guidelines adopted by the State Water Resources Control Board regarding water usage, the diversion of water, and the discharge of waste while cultivating cannabis. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1045 Carbon dioxide testing.

Cultivators shall test carbon dioxide levels within cultivation areas at the cultivation site, if carbon dioxide is added to the air. No carbon dioxide shall be utilized for cultivation without prior inspection and approval of the City's Building Official and the Fire Code Official. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1050 Storage and use of compressed gas.

A. Storage and use of compressed gases in compressed gas containers, cylinders, tanks, and systems used for cultivation shall comply with this Code and the California Fire Code.

B. Any compressed gases used in cultivation shall not be stored on any property within the City in containers that exceed the amount that is approved by the Fire Code Official and authorized by the Adult-Use Cannabis Business Permit. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1055 Pesticides.

A. Cultivators shall comply with all applicable federal, State and local laws and regulations

regarding use, storage, and disposal of pesticides and fertilizers, including, without limitation, those enforced by the State Department of Food and Agriculture and State Department of Pesticide Regulation. Cultivators shall ensure hazards are not created on the permitted premises by the use or storage of chemicals, fertilizers, materials, processes, products, or wastes.

B. Pesticides, insecticides, and/or fertilizers prohibited by federal, state, or local law for fertilization or production of edible produce shall not be used for cultivation.

C. Employee safety. At a minimum, Cultivators using pesticides shall protect all employees from exposure to pesticides by following pesticide labels; providing required personal protective equipment; providing access to pesticide labels, safety information, and training on an annual basis; properly ventilating all areas of the cultivation site; and proper storage, handling, and disposal of pesticides in compliance with State, federal, and local laws and regulations pertaining to pesticide use and worker safety. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1060 Packaging and labeling.

A. All cannabis packaged and/or labeled by a Cultivator shall meet the provisions of packaging and labeling requirements specified by State law, including but not limited to, California Business and Professions Code Division 5 ("Weights and Measures") and Division 10 ("Cannabis") and any regulations implemented and enforced by the Bureau of Cannabis Control, the State Department of Public Health, or State Department of Food and Agriculture.

B. Prior to distribution and transportation, a Cultivator shall package and seal all cannabis in tamper-evident packaging and use a unique identifier of the harvest batch to identify and track said cannabis.

C. Product labels. All labels for cannabis shall include all of the following: all required government warnings; the net weight of cannabis in the package; source and the date of cultivation; the type of cannabis; the date of packaging; and the product's unique identifier for the harvest batch.

D. Packaging that makes cannabis attractive to children or imitates candy is prohibited. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1065 Accurate weights and measures.

A. Weighing devices used by a Cultivator shall be approved, tested, sealed, and registered with the Los Angeles County Agricultural Commissioner/Weights and Measures in compliance with California Business and Professions Code Division 5 ("Weights and Measures") and Division 10 ("Cannabis"), any regulations implemented by the State Department of Food and Agriculture, and all other applicable local, State, and Federal laws.

B. Cultivators are prohibited from using scales, weights, or measures that do not accurately conform to the standard of weights and measures of the State and county. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

DIVISION VI. MANUFACTURING OPERATING CONDITIONS

In addition to the general operating requirements set forth in Division III of this Chapter, this Division provides additional requirements for Manufacturers. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1110 Compliance.

A. The manufacture of cannabis products shall comply with the standards set by State and local law, including but not limited to those related to volatile and nonvolatile extractions; labeling, packaging, repackaging, and relabeling; infusions; safety; discharges; waste disposal; processing, handling, and storage of solvents or gases; and food handling.

B. Manufacturers shall only be allowed to engage in the manufacture of cannabis authorized by State law and in the Adult-Use Cannabis Business Permit issued for the premises. No additional manufacturing activities may be conducted without applying for, and receiving written permission, from the City for said additional activity.

C. The manufacture of cannabis products shall be conducted in a manner to ensure the

operation does not pose a significant threat to the health, safety, and welfare of the public or to neighboring properties. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1115 Additional ventilation requirements.

A. In addition to the general odor control and ventilation requirements in Section 5.92.540, Manufacturers shall utilize adequate ventilation or control equipment to minimize dust, odors, and vapors (including steam and noxious fumes) in areas where they may cause allergen cross-contact or contamination of cannabis products.

B. Fans and other air-blowing equipment used at a manufacturing facility shall be used in a manner that minimizes the potential for allergen cross-contact and contamination of manufactured cannabis products or packaging materials and contact surfaces intended for manufactured cannabis handling or production. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1120 Sanitation standards.

A Manufacturer shall comply with sanitation standards equivalent to the California Retail Food Code (Part 7 (commencing with Section 113700) of Division 104 of the California Health and Safety Code) for food preparation, storage, handling, and sale of products. Cannabis, including concentrated cannabis in a cannabis product, manufactured in compliance with this Chapter and State law is not considered an adulterant under this Chapter. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1125 Quality and preventative controls.

A. Quality control. A Manufacturer shall employ quality control personnel and establish standard operating procedures that comply with current good manufacturing practices, as outlined by the State Department of Public Health and the U.S. Food and Drug Administration.

B. Preventative controls. All Manufacturers have a continuous obligation to identify and/or evaluate known or reasonably foreseeable hazards and implement written preventive controls to significantly minimize or prevent manufactured cannabis products from becoming adulterated or misbranded. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1130 Standard operating procedures.

A Manufacturer creating cannabis extracts shall develop standard operating procedures, good manufacturing practices, and a training plan prior to producing extracts for the marketplace. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1135 Fire Code Official approval required.

Manufacturers conducting extractions, including any professional closed loop systems or equipment used in extraction or processing, shall be approved for their use by the Fire Code Official and shall comply with the following requirements:

A. Any required fire, safety, and building code requirements specified in the California Building and Fire Codes, as adopted by the City.

B. Any State laws and regulations implemented and enforced by the State Department of Public Health. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1140 Vacuum ovens.

A. Vacuum ovens shall not be used to process volatile solvents or flammable/combustible liquids contained in cannabis concentrate unless said vacuum oven is rated to process the vapors of volatile solvents or flammable/combustible liquids, such as a vacuum oven that is rated with an explosion-proof classification.

B. Manufacturers conducting extractions with a vacuum oven shall take adequate precautions to ensure that any cannabis concentrate introduced into said oven does not contain volatile solvents or flammable/combustible liquids.

C. All vacuum ovens used in the manufacture of cannabis products shall be listed by a Nationally Recognized Testing Laboratory (NRTL). (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1145 Doors to extraction room.

Doors to any room where Manufacturers use volatile solvents, hazardous materials, or flammable/combustible liquids in the manufacture of cannabis shall swing in the direction of egress, be self-closing and/or self-latching, and be provided with panic hardware. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1150 Refrigerators.

A. Volatile solvents, hazardous chemicals, and flammable/combustible liquids, including volatile solvents, hazardous chemicals, and flammable/combustible liquids contained in concentrated cannabis or cannabis goods, shall be stored in a refrigerator, refrigerated storage, or a freezer rated to store flammable liquids.

B. Manufacturers shall store and process all volatile solvents or flammable/combustible liquids, including concentrated cannabis and manufactured cannabis that contains volatile solvents or flammable/combustible liquids, in refrigerators, refrigerated storage, or freezers rated to store flammable liquids which are, at a minimum, rated "Lab-Safe" or "Flammable Safe." (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1155 Closed loop system required.

A. Chemical extractions using carbon dioxide or a volatile solvent shall be conducted in a professional and commercially manufactured closed loop extraction system that has been certified by a California-licensed engineer. All professional and commercially manufactured closed loop systems shall bear a permanently affixed and viable serial number.

B. No closed loop systems shall be utilized without prior inspection and approval of the Fire Code Official.

C. Certification requirements.

1. Certifications from a California-licensed engineer of any closed loop system used by a Manufacturer shall be provided to the Fire Code Official to certify that the system was commercially manufactured, is safe for its intended use, and was built to codes of recognized and generally accepted good engineering practices, including but not limited to:

a. The American Society of Mechanical Engineers (ASME);

b. American National Standards Institute (ANSI);

c. Underwriters Laboratories (UL); or

d. The American Society for Testing and Materials (ASTM).

2. The certification document required pursuant this subsection shall contain the signature and stamp of the professional engineer and serial number of the extraction unit being certified.

D. Training required. Any person using solvents or gases in a closed looped system to create cannabis extracts shall be fully trained on how to use the system, have direct access to applicable material safety data sheets, and handle and store the solvents and gases safely in compliance with State and local laws and regulations. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1160 Volatile and nonvolatile solvents permitted.

A. Manufacturers may only use volatile solvents or gases approved by the Fire Code Official and State law for extractions. Manufacturers may use nonvolatile solvents or mechanical processes to create or refine extracts, if approved by the Fire Code Official.

B. Any extraction process must use solvents or gases in a professional grade closed loop extraction system designed to recover the solvents and work in an environment with proper ventilation. Manufacturers shall control all sources of ignition where a flammable atmosphere is or may be present. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1165 Change in solvent.

A. Any Manufacturer that changes the medium of extraction or solvent used in manufacturing from the technical report previously approved by the Fire Code Official shall submit a revised

technical report for approval of the Fire Code Official prior to the use of the equipment with said new medium or solvent. The technical report shall be revised at the cost of the Manufacturer.

B. If the original engineer of record that drafted the last approved technical report is not available, then the Manufacturer shall comply with the following requirements prior to submitting a revised technical report to the Fire Code Official that has been drafted by a new engineer of record:

1. The Manufacturer shall submit the new engineer's educational background and professional experience specific to the review and approval of system, equipment, and processes with like hazards of those associated with the extraction system to the Fire Code Official.

2. Once the proof of qualifications is deemed acceptable by the Fire Code Official, the engineer of record shall produce the technical report and the report shall be signed and sealed in accordance with State requirements. The proof of qualifications shall include documentation indicating the person is a professional engineer licensed in the State. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1170 Storage and use of compressed gas.

A. Storage and use of compressed gases in compressed gas containers, cylinders, tanks, and systems used for cannabis manufacturing shall comply with this Code and the California Fire Code.

B. Any compressed gases used in the manufacturing process shall not be stored on any property within the City in containers that exceed the amount that is approved by the Fire Code Official and authorized by the Adult-Use Cannabis Business Permit. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1175 Hazardous material requirements.

Manufacturers that use and generate hazardous materials or hazardous waste shall comply with all applicable hazardous material regulations for hazardous waste generators and hazardous material handling requirements and shall maintain any applicable permits from the Certified Unified Program Agency (CUPA) of Long Beach for said regulations and requirements. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1180 Edible cannabis products.

A. The manufacture, distribution, and transportation of edible cannabis products shall be conducted in a manner that complies with all applicable food safety laws for the protection of humans consuming cannabis.

B. Cannabis facility requirements and limitations.

1. All products, storage facilities, utensils, equipment, and materials used for the manufacture of edible cannabis products shall be approved, used, managed, and handled in accordance to the provisions of all State and local laws regarding the preparation, distribution, labeling, and sale of food.

2. Any manufacturing site that proposes to prepare, store, dispense, and distribute edible cannabis products shall comply with the relevant provisions of all State and local laws regarding the preparation, distribution, labeling, and sale of food.

3. No food production shall be allowed in a facility where edible cannabis products are manufactured to avoid the unintentional contamination of non-cannabis foods with cannabis.

4. Facilities where edible cannabis products are manufactured shall be constructed, permitted, operated, and inspected in accordance with the applicable building code and applicable food safety requirements. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1185 Food handler certification.

All owners, employees, volunteers, or other individuals that participate in the production of edible cannabis products shall be State certified food handlers. The valid certificate number of each such owner, employee, volunteer, or other individual shall be on record at the permitted premises where said individual participates in the

production of edible cannabis products. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1190 Packaging and labeling.

A. All manufactured cannabis products packaged and/or labeled by a Manufacturer shall meet the provisions of packaging and labeling requirements specified by State law, including but not limited to, California Business and Professions Code Division 5 ("Weights and Measures") and Division 10 ("Cannabis"), and any regulations implemented and enforced by the Bureau of Cannabis Control or the State Department of Public Health.

B. Packaging that makes cannabis products attractive to children or imitates candy is prohibited.

C. Prior to release of a product to a Distributor, Manufacturers shall package and seal all cannabis products in tamper-evident packaging and use a unique identifier for the manufactured cannabis batch to identify and track the cannabis products.

D. Edible cannabis products shall not exceed 10 milligrams of tetrahydrocannabinol (THC) per serving. The THC content for the edible cannabis product in its entirety shall be printed on the edible cannabis product packaging. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1195 Accurate weights and measures.

A. Manufacturers shall maintain all weighing devices in good working order, approved, tested, sealed, and registered with the Los Angeles County Agricultural Commissioner/Weights and Measures in compliance Division 5 ("Weights and Measures") of the California Business and Professions Code, any regulations implemented by the Manufactured Cannabis Safety Branch, and all other applicable local, State, and Federal laws.

B. Manufacturers are prohibited from using scales, weights, or measures that do not accurately conform to the standard of weights and measures of the State and county. (ORD-22-0015 § 4, 2022; ORD-18-0015 § 6(Exh. F), 2018)

DIVISION VII. SHARED USE MANUFACTURING OPERATING CONDITIONS

Manufacturing facilities may be shared, containing multiple licensed permit holders for a single premises. In addition to the general operating requirements set forth in Division III and the manufacturing operating requirements set forth in Division VI of this Chapter, this Division provides additional requirements for Shared Use Manufacturing. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 15, 2021)

5.92.1210 Compliance.

A. The manufacture of cannabis products in shared-use facilities shall comply with the standards set by State and local law, including but not limited to those related to volatile and nonvolatile extractions; labeling, packaging, repackaging, and relabeling; infusions; safety; discharges; waste disposal; processing, handling, and storage of solvents or gases; and food handling.

B. Manufacturers shall only be allowed to engage in the manufacture of cannabis authorized by State law and in the Adult-Use Cannabis Business Permit issued for the premises. No additional manufacturing activities may be conducted without applying for, and receiving written permission, from the City for said additional activity.

C. The manufacture of cannabis products shall be conducted in a manner to ensure the operation does not pose a significant threat to the health, safety, and welfare of the public or to neighboring properties. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 15, 2021)

5.92.1215 Equity licenses prioritized.

A. The City shall accept applications for Shared Use Manufacturing Operator Licenses from Verified Equity Businesses only for a period of one (1) year, or until fifteen (15) Operator licenses have been issued, whichever occurs sooner. The one-year period shall not start until the date the City begins accepting applications for Shared Use Manufacturing Operator Licenses.

B. After the one-year period has concluded, the City shall begin accepting applications from all qualifying applicants for the Shared Use Manufacturing Operator license pursuant to this chapter. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 15, 2021)

5.92.1220 Principal Licensees.

A. Shared-use manufacturing facilities are required to have a Principal Licensee, who is responsible for the facility.

B. The principal licensee shall operate the shared-use facility in accordance with the conditions of operation specified in this Chapter.

C. The shared-use manufacturing principal licensee shall be responsible for ensuring the facility meets all applicable requirements of this Chapter.

D. No cannabis manufacturer shall operate as a shared-use manufacturing facility without prior approval of the City.

E. Licensed cannabis manufacturers in good standing may request to operate as a shared-use manufacturing facility on a form prescribed by the Director of Financial Management. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 15, 2021)

5.92.1225 Operator Licensees.

A. Operator licenses will only be issued to businesses that have received written authorization to operate in a licensed shared-use manufacturing facility.

B. Operator Licensees may only conduct the following operational activities:

1. Infusions, as defined by this Chapter;

2. Packaging and labeling of cannabis products; and,

3. Extractions with butter or food-grade oils, provided that the resulting extract or concentrate shall be used solely in the manufacture of the Operator Licensee's infused product and shall not be sold to any other licensee.

C. Operator licensees shall have a separate license for each shared-use manufacturing facility where they are conducting manufacturing operations.

D. Operator Licensees may only operate at the facility identified by their license and during the hours set forth in the occupancy schedule. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 15, 2021)

5.92.1230 Exemptions.

A. Operator Licensees are exempt from the following provisions of this Chapter:

1. 5.92.215.3.d (Proof that the applicant has the legal right to occupy and use the premises for commercial cannabis activity);

2. 5.92.250 (One applicant per address);

3. 5.92.425 (Noncompliant locations);

4. 5.92.435 (Premises Requirements);

5. 5.92.860 (Subletting prohibited). (ORD-22-0015 § 4, 2022; ORD-21-0023 § 15, 2021)

5.92.1235 Use agreements.

A. The Principal licensee and the Operator Licensee(s) may take part in a use agreement which may allocate responsibility for providing and maintaining commonly used equipment and services, including, but not limited to, security systems, fire monitoring and protection services, and waste disposal services. However, such agreement is not binding on the City and the City may take enforcement action against either the principal licensee or the Operator Licensee(s), regardless of the allocation of responsibility in the use agreement. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 15, 2021)

5.92.1240 Designated areas.

A. The Principal licensee will identify and assign each Operator Licensee a "designated area" that, at a minimum:

1. Is for exclusive use by the Operator Licensee; and,

2. Provides an area for storage that is secure, fixed in place, locked with a commercial-grade lock, and accessible only to the Operator Licensee for storage of that Operator Licensee's cannabis, cannabis concentrates, and cannabis products.

B. The designated area for an Operator Licensee shall not be altered without prior notification to the City. Prior to making any changes to the designated area, written notification shall be

submitted to the City that includes the intended changes. The City shall approve all changes prior to the designated area being altered. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 15, 2021)

5.92.1245 Common-use areas.

A. The Principal licensee will identify and assign common-use area(s) authorized for use by the Operator Licensee.

B. Any part of the premises used for manufacturing activities that is a common-use area shall be occupied by only one licensee at a time by restricting the time period that each licensee may use the common-use area. During the assigned time period, one licensee shall have sole and exclusive occupancy of the common-use area.

C. The principal licensee may conduct manufacturing activities as permitted under its medical or adult-use manufacturing license and may use the common-use area during its scheduled time period. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 15, 2021)

5.92.1250 Occupancy schedules.

A. The Principal licensee is responsible for providing an occupancy schedule that identifies the days and/or times each Operator Licensee is authorized to use the common-use area(s).

B. The occupancy schedule shall be prominently posted near the entrance to the licensed shared-use facility.

C. The occupancy schedule shall not be altered without prior notification to the City. Prior to making any changes to the occupancy schedule, written notification shall be submitted to the City that includes the intended changes. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 15, 2021)

5.92.1255 Facility restrictions.

The use of the shared use facility shall be restricted to the principal licensee and Operator Licensees authorized by the City to use the shared-use facility. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 15, 2021)

5.92.1260 Facility modifications.

The use of the shared use facility shall be restricted to the principal licensee and Operator Licensee(s) authorized by the City to use the shared-use facility. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 15, 2021)

5.92.1265 Cannabis waste.

Any cannabis product or other materials remaining after an Operator Licensee ceases operation and discontinues use of its designated area shall be considered cannabis waste and disposed of by the principal licensee consistent with the requirements of this Chapter. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 15, 2021)

5.92.1270 Product recalls or embargoes.

In the event of a recall or embargo of a cannabis product produced at a shared-use facility, the City, in its sole discretion, may include any or all cannabis products produced at the shared-use facility. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 15, 2021)

5.92.1275 Discontinuing operations.

A Principal Licensee that wishes to discontinue operation as a shared-use facility may do so by providing written notice to the City and each Operator Licensee authorized to use the shared-use facility at least thirty (30) calendar days prior to the effective date of the cancellation. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 15, 2021)

5.92.1280 Violations.

A Principal licensee or an Operator Licensee is liable for any violation found at the shared-use facility during that licensee's scheduled occupancy or within that licensee's designated area. However, a violation of any provision of the Chapter may be deemed a violation for which each Operator Licensee and the principal licensee are responsible. In the event of a recall or embargo of a cannabis product produced at a shared-use facility, the City, in its sole discretion, may include any or all cannabis products produced at the shared-use facility. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 15, 2021)

DIVISION VIII. DISTRIBUTION OPERATING CONDITIONS*

In addition to the general operating requirements set forth in Division III of this Chapter, this Division provides additional requirements for Distributors. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 11, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1310 Compliance.

A. A Distributor and the premises shall meet all health protection operating criteria for the distribution of cannabis goods as required by State law and regulations implemented and enforced by the Bureau of Cannabis Control.

B. Distributors shall transfer cannabis goods only between State licensees. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 11, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1315 Transport Only Distributor.

A. Transport Only Distributor may transport cannabis goods between State licensees if the transport, and the type of cannabis goods transported, is authorized by State and local law.

B. A Transport Only Distributor shall comply with all provisions required by this Code and State law for Distributors, except for those related to quality assurance and testing.

C. A Transport Only Distributor shall not hold title to any cannabis goods unless said Transport Only Distributor also holds a State-issued Cultivation, Manufacturing, Retailer, or Microbusiness license.

D. Transport Only Distributors shall not be authorized to:

1. Engage in the delivery of cannabis goods to a customer; or

2. Engage in the wholesale, destruction, packaging, labeling, or storing of cannabis goods; or

3. Arrange for the testing of cannabis goods by a Testing Laboratory. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 11, 2021; ORD-18-0015 § 6(Exh. F), 2018)

***Editor's note**—ORD-21-0023 § 11, adopted July 13, 2021 renumbered Div. VII, §§ 5.92.1210—5.92.1240 as Div. VIII, §§ 5.92.1310—5.92.1340.

5.92.1320 Storage.

A. Separate and distinct. Distributors shall ensure that each batch is stored separately and distinctly from every other batch on the Distributor's premises.

B. Labels required for batch storage containers. Distributors shall ensure a label with the following information is physically attached to each container of each batch: the Manufacturer or Cultivator's name and State license number; the date of entry into the Distributor's storage area; the unique identifiers and batch number associated with the batch; a description of the cannabis goods with enough detail to easily identify the batch; and the weight of or quantity of units in the batch.

C. A Distributor shall store cannabis goods in a building designed to permit control of temperature and humidity and shall prevent the entry of environmental contaminants such as smoke and dust. The area in which cannabis goods are stored shall be vermin proof and shall not be exposed to direct sunlight. Distributors shall not store cannabis goods outdoors.

D. Storage-only services. Distributors may provide cannabis or cannabis product storage-only services to a Cultivator, Manufacturer, or other Distributor, which are unrelated to the quality assurance and laboratory testing processes required of the Distributor. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 11, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1325 Quality assurance.

A. Distributors shall ensure compliance with any requirements for packaging and labeling cannabis goods pursuant to State and local law and regulations.

B. After taking physical possession of a cannabis batch, the Distributor shall meet all testing requirements and procedures as required by local and State law and regulations. Upon the request of the City Manager, the Distributor shall immediately make available the results of all tests performed on each cannabis batch by a certified State licensed Laboratory.

C. A Distributor shall only procure, sell, or transport cannabis goods that are packaged and sealed in tamper-evident packaging that use a unique identifier, such as a batch and lot number or bar code, to identify and track the cannabis goods. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 11, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1330 Transport.

A. Documentation during transport. Transporters shall carry a physical or electronic copy of the shipping manifest for the transport of cannabis goods, a copy of the Distributor's current permits and/or licenses required by the State and City, the Transporter's government-issued identification, and an identification badge provided by the Distributor. All documentation shall be made available upon request to the City Manager or Chief of Police.

B. Transporters shall be at least twenty-one (21) years of age and shall have a valid California Driver's License.

C. Vehicle standards. A Distributor shall only allow transport of cannabis goods in a vehicle:

1. That is capable of securing (locking) the cannabis goods during transportation.

2. That is capable of being time and/or temperature controlled if perishable cannabis goods are being transported.

3. That does not display advertising or symbols visible from the exterior of the vehicle that suggest the vehicle is used for cannabis transport or affiliated with a Commercial Cannabis Business.

D. Inspections. Any motor vehicle used by a Distributor to transport cannabis goods is subject to inspection by the City Manager or Chief of Police and may be stopped during transport, delivery, or pick-up of cannabis goods for inspection. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 11, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1335 Accurate weights and measures.

A. Distributors shall maintain all weighing devices in good working order, approved, tested, sealed, and registered with the Los Angeles County Agricultural Commissioner/Weights and Measures in compliance Division 5 ("Weights and Measures") of the California Business and Professions Code, any applicable State laws and regulations implemented by the State or its departments or divisions, and all other applicable local, State, and Federal laws.

B. Distributors are prohibited from using scales, weights, or measures that do not accurately conform to the standard of weights and measures of the State and county. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 11, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1340 Records.

A. In addition to records generally required of all Adult-Use Cannabis Businesses, every Distributor shall maintain records specific to the operation, including but not limited to: records relating to branding, packaging and labeling; inventory logs and records; transportation bills of lading and shipping manifests for completed transports and for cannabis goods in transit; vehicle and trailer ownership records; quality-assurance records; records relating to destruction of cannabis goods; laboratory-testing records; warehouse receipts; records relating to tax payments collected and paid. The Distributor shall make all records available to the City upon request.

B. Storage records. A Distributor shall maintain a written contract with other State licensees storing cannabis goods on the Distributor's premises. A Distributor shall maintain a separate storage inventory log for every State licensee storing cannabis goods on the Distributor's premises. The Distributor's storage inventory logs and written contracts shall be provided to the City Manager upon request. All inventory documents shall contain the identity and State license number of all contracting parties.

C. A Distributor shall maintain a database, and provide to the City upon request, a list of the individuals and vehicles authorized to conduct transportation on behalf of the Distributor. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 11, 2021; ORD-18-0015 § 6(Exh. F), 2018)

DIVISION IX. TESTING LABORATORY OPERATING CONDITIONS*

In addition to the general operating requirements set forth in Division III of this Chapter, this Division provides additional requirements for Testing Laboratories. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 12, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1410 Compliance.

All laboratory testing of cannabis goods shall be performed in accordance with this Chapter, this Code, and any applicable State law and regulations, implemented and enforced by the State and its divisions and departments. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 12, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1415 No other employment or interest.

No owner or employee of a Laboratory may be employed by, or have any ownership or financial interest, in any other type of commercial cannabis activity. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 12, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1420 Laboratory employee requirements.

Laboratory employees shall meet the experience, education, and training requirements specified and required by the State or any of its departments and divisions. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 12, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1425 Certificate of accreditation required.

Every Laboratory shall hold a valid certificate of ISO/IEC 17025 accreditation, issued by an accreditation body that attests to the Laboratory's competence to perform testing of the cannabis goods for compounds and contaminants, in compliance with State laws and regulations for cannabis testing. Said accreditation body shall be a signatory to the International Laboratory Accreditation Cooperation Mutual Recognition Arrangement for testing. The certificate of accreditation shall be kept at the premises. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 12, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1430 Standard operating procedures.

A Laboratory shall adopt a standard operating procedure using methods consistent with general requirements established by the International Organization for Standardization, specifically ISO/IEC 17025, to test cannabis goods, and shall operate in compliance with State law at all times. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 12, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1435 Chain of custody controls.

A Laboratory shall establish standard operating procedures that provide for adequate chain of custody controls for samples transferred to the Laboratory for testing. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 12, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1440 Certificate of Analysis.

A Laboratory shall generate a Certificate of Analysis (COA) for all representative samples analyzed by the Laboratory in compliance with State law and any regulations implemented and enforced by the Bureau of Cannabis Control. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 12, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1445 Annual audit.

A Laboratory shall conduct an internal audit at least once per year or according to the ISO Accrediting Body and the State's requirements, whichever is more frequent. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 12, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1450 Transportation and storage of testing samples.

Every Laboratory shall ensure samples are transferred, transported, and securely stored in a

***Editor's note**—ORD-21-0023 § 12, adopted July 13, 2021 renumbered Div. VIII, §§ 5.92.1310—5.92.1370 as Div. IX, §§ 5.92.1410—5.92.1470.

manner that prevents degradation, contamination, and tampering, and in compliance with labeling on the cannabis product pursuant to a specified chain of custody protocol. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 12, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1455 Destruction of samples.

A Laboratory shall destroy the remains of samples of any cannabis goods upon completion of analyses, and after the expiration of any post-testing sample retention period, in compliance with State law and any regulations implemented and enforced by the Bureau of Cannabis Control. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 12, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1460 Additional ventilation requirements.

In additional to the general odor control and ventilation requirements in Section 5.92.540, the Laboratory shall implement adequate ventilation or control equipment to minimize dust, odors, and vapors (including steam and noxious fumes) in areas where they may cause allergen cross-contact or contamination of cannabis products. Fans and other air-blowing equipment used at a Laboratory premises shall be used in a manner that minimizes the potential for allergen cross-contact and contamination of cannabis goods. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 12, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1465 Hazardous material requirements.

Laboratories that use and generate hazardous materials or hazardous waste shall comply with all applicable hazardous material regulations for hazardous waste generators, and hazardous materials handling requirements and shall maintain any applicable permits for these programs from the Certified Unified Program Agency (CUPA) of Long Beach. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 12, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1470 Records.

A Laboratory shall ensure the transport, handling, storage, and destruction of samples are accurately documented. All documentation and the results of all testing shall be maintained as a part of the required records of the Laboratory. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 12, 2021; ORD-18-0015 § 6(Exh. F), 2018)

DIVISION X. ENFORCEMENT AND PENALTIES*

5.92.1510 Violations generally.

A. It is unlawful for any person to violate any provision, or to fail to comply with any of the conditions or requirements of this Chapter, or any regulation adopted pursuant to it.

B. Separate violation. Every day, during any portion of which, any violation of this Chapter is committed, continued, or allowed to continue is a separate offense and is subject to all remedies and enforcement measures authorized by this Code.

C. Every cannabis plant, including both immature and mature plants, cultivated in violation of this Chapter by an illegal cannabis operation constitutes a separate violation subject to the penalties of this Chapter.

D. Paying a fine or serving a jail sentence does not relieve any person from responsibility for correcting any condition that violates any provision of this Chapter.

E. Whenever in this Chapter any act or omission is made unlawful, it shall include causing, permitting, aiding, abetting, suffering, or concealing the fact of such act or omission.

F. Violation of any provision of this Chapter shall be considered a strict liability; accordingly, the City shall not be required to prove knowledge, criminal intent, or any other mental state to establish a violation of this Chapter. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 13, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1515 Remedies cumulative.

A. The remedies provided for in this Chapter are not mutually exclusive. Pursuit of any one remedy does not preclude the City from availing

***Editor's note**—ORD-21-0023 § 13, adopted July 13, 2021 renumbered Div. IX, §§ 5.92.1410—5.92.1495 as Div. X, §§ 5.92.1510—5.92.1595.

itself of any or all available administrative, civil, or criminal remedies, at law or equity. The remedies provided by this Chapter are cumulative and in addition to any other remedies available at law or in equity.

B. This Chapter does not limit the City's additional remedies for recovering taxes or damages in accordance with any applicable law including, without limitation, cannabis business taxes owed by an unlawful Commercial Cannabis Business pursuant to Chapter 3.80 of this Code. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 13, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1520 Declaration of public nuisance.

A. Any violation of the provisions of this Chapter is hereby deemed unlawful and a public nuisance.

B. As a nuisance per se, any violation of this Chapter is subject to any of the following remedies, including, without limitation: injunctive relief, revocation of applicable permits or licenses, revocation of the certificate of occupancy for the real property where the violation occurred, disgorgement and payment to the City of all monies unlawfully obtained, costs of abatement, costs of investigation, attorney fees, and any other relief or remedy available at law or equity.

C. For purposes of notification of nuisance and abatement pursuant to Section 9.37.100 of this Code, a reasonable time limit for a property owner or person to correct or abate the nuisance of an illegal cannabis operation is no less than five (5) calendar days. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 13, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1525 Liability of employees and agents.

Liability of employees and agents. In construing and enforcing the provisions of this Chapter, the act, omission, or failure of an agent, officer, representative, or other person acting for or employed by an Adult-Use Cannabis Business, within the scope of his or her employment or office, will be in every case be deemed the act, omission, or failure of the Adult-Use Cannabis Business. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 13, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1530 Liability of property owners.

A. No property owner in charge of, or in possession of, any real property within the City shall cause, permit, maintain, conduct, or otherwise suffer or allow a public nuisance as defined in this Chapter to exist.

B. It is the duty of every property owner, and person that controls any real property or interest therein, within the City to remove, abate, and prevent the reoccurrence of the public nuisance upon such real property. Such duty of the property owner exists regardless of whether the property owner is in actual possession of his or her real property, and includes an obligation to act to evict or otherwise remove an illegal cannabis operation who illegally exists or creates a public nuisance upon the property owner's real property.

C. In addition to any abatement costs incurred by the City for closing or removing an illegal cannabis operation from private real property, failure of a property owner to voluntarily abate an illegal cannabis operation after notification by the City shall result in the penalties set forth in this Chapter. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 13, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1535 Liability of costs, fines, and fees.

A. Liability of costs. In any enforcement action brought pursuant to this Chapter, whether by administrative proceedings, judicial proceedings, or summary abatement, every person who causes, suffers, maintains, or permits any illegal cannabis operation and/or operation to exist, or remain in violation of this Chapter, is liable for all actual costs incurred by the City, including, but not limited to: all actual costs for inspection, enforcement, revocation, suspension, abatement, or any other actual costs incurred to undertake, or to cause or compel any responsible party to undertake, any abatement action in compliance with the requirements of this Chapter, including costs of

litigation and reasonable attorney's fees, whether those costs are incurred prior to, during, or following enactment of this Chapter.

B. Any person may abate an illegal cannabis operation or cause it to be abated at any time prior to commencement of abatement by, or at the direction of, the City Manager. Abatement prior to the hearing does not absolve any person from paying costs, fees, and administrative penalties that accrued up to the date of abatement. Proof of Abatement shall be provided to the Hearing Officer(s) at the time of hearing.

C. Liability for cost of destruction. If required by State law, regulation, or court order to destroy any cannabis goods associated with a violation of this Chapter, a violator is responsible for the cost of the destruction of cannabis goods associated with said violation.

D. Failure to pay fines and fees. Failure to pay a fine or penalty within thirty (30) calendar days of the date of assessment may result in penalties, suspension, or revocation of the permit, unless the citation is being appealed. The full amount of any assessed fine or penalty may be added to the fee for renewal of the permit. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 13, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1540 Permit suspension, revocation, or denials.

A. Noncompliance. Failure to comply with any of the provisions of this Chapter will constitute grounds for suspension, denial, or revocation of the permit. The noticing and hearing requirements for suspension or revocation of the permit shall be governed by the provisions of Chapter 5.06 of this Code.

B. Cease activity. No person may conduct any business or activity regulated by this Chapter while an application for a permit is pending, at any time after a permit denial or revocation, or while a permit is suspended.

C. Grounds for denial, revocation, or suspension of permit. In addition to the provisions of Chapter 5.06 of this Code, the Director of Financial Management may deny any application for a permit, or revoke or suspend any permit, on the following grounds:

1. A permit application does not satisfy the minimum qualifications or fails to comply with the applicable requirements of this Chapter.

2. Failure to comply with any of the terms and conditions attached to the permit at the time of approval.

3. Any act or omission that violates the requirements of this Code, including any rule, regulation, condition, or standard adopted pursuant to this Chapter, or any other applicable State or local rule, law, or regulation.

4. Any act or omission that results in the denial, revocation, or suspension of the permittee's State license.

5. Failure to renew the permittee's State license.

6. The permit was granted, in whole or in part, based on any written or oral misrepresentation or omission of a material statement in the permit application.

7. Conducting a commercial cannabis activity in a manner that constitutes a nuisance, where the permittee has failed to comply with reasonable conditions to abate the nuisance.

8. Conviction for any controlled substance felony by an owner after a permit has been issued.

9. A person has been, or is, prohibited from having an ownership interest in an Adult-Use Cannabis Business pursuant to Section 5.92.265.

10. A person has committed a deliberate or willful violation of an applicable law, or applicable rule and regulation related to commercial cannabis activity. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 13, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1545 Appeal of permit denial.

A. Any applicant pursuant to this Chapter whose application for an Adult-Use Cannabis Business Permit, whose application for such permit has been denied, shall be notified in writing of the denial and their right to file an appeal, pursuant to

Section 5.06.030 of this Code, within ten (10) calendar days after the date of mailing of the Notice of such denial.

B. Any written request for an appeal of a permit denial pursuant to this Chapter shall include details regarding the denial and the specific ground(s) on which the dispute of the denial is based. At the time of filing the notice of appeal, the applicant shall pay to the Director of Financial Management the fee set by resolution of the City Council for appeals hereunder.

C. If the written request is filed within the time period specified, within thirty (30) days following the filing of said written request, the City shall set a hearing to be held not less than ten (10) days nor not more than thirty (30) days thereafter, and such hearing may for good cause be continued by the City.

D. The hearing shall be held in accordance with Chapter 2.93 of this Code, except that the matter shall be automatically referred to the City Clerk for selection of a Hearing Officer, without the City Council's referral, in accordance with Subsection 2.93.050.B of this Code.

E. Failure to file the written request within the time period specified shall result in waiver of any right to dispute the denial of an application for an Adult-Use Cannabis Business Permit pursuant to this Chapter. Failure of an appellant or their authorized representative to appear at any noticed hearing shall constitute an abandonment of the hearing appeal and shall constitute a failure to exhaust administrative remedies.

F. Right to recover costs. In the event a civil action is initiated by the City to enforce any decision under this Section, and a judgment is entered to enforce said decision, any person against whom the order of enforcement has been entered shall be liable to pay the City's total costs of enforcement, including reasonable attorney fees. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 13, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1550 Factors for suspension or revocation.

A. The City Manager may consider the following factors in deciding whether a permit should be suspended or revoked in accordance with this Chapter, as applicable:

1. The nature and severity of the acts, offense, or crimes under consideration.

2. Any corrective action taken by the permittee.

3. Prior violations at the permitted premises by the permittee and the effectiveness of prior corrective action.

4. Previous sanctions imposed against the permittee.

5. The number and/or variety of current violations.

6. The likelihood of recurrence.

7. All circumstances surrounding the violation.

8. Whether the violation was willful.

9. Any actual or potential harm to the public.

10. The length of time the permit has been held by the permittee.

11. Evidence of expungement proceedings under Penal Code Section 1203.4.

12. Any other factor that makes the situation unique or the violation of greater concern, with respect to the permittee or the permitted premises. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 13, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1555 Permit reapplications.

A. Whenever an application for a permit is denied, no other application by such permittee will be considered for a period of one (1) year from the date of the denial of an application, with an exception granted to any applicant whose Adult-Use Business License Application was denied solely because the applicant's proposed premises does not comply with the sensitive use buffers in subsections (1) through (4) of Section 5.92.420.A.

B. Whenever a permit has been revoked, no other similar application by such permittee for an Adult-Use Cannabis Business Permit shall be considered for a period of five (5) years from either the

date the notice of the permit revocation was mailed or the date of the final decision of the City Council to revoke the permit, whichever is later.

C. The provisions of subsections (A) and (B), above, apply to all of the following:

1. Any individual whose permit was revoked or whose application was denied who later becomes a director or officer of a corporation, profit or nonprofit, or a member of a partnership or a person owning or possessing any portion of the shares of a corporation seeking to obtain a new permit.

2. A corporation, profit or nonprofit, whose permit was revoked or application was denied, to any of its directors or officers or to any person who owned any portion of its shares, who attempts by way of a new corporation or using their individual names or becoming a member of a partnership or a director or officer or a person owning or possessing any portion of the shares in another corporation seeking to obtain a new permit.

D. Effect of suspension, revocation, or denial on Co-Located Cannabis Business Permits.

1. Suspension of a permittee's co-located Adult-Use Cannabis Business Permit or Medical Marijuana Business Permit, shall immediately suspend the permittee's other co-located permit for the same premises and permittee's ability to operate a Commercial Cannabis Business within the City, until the City reinstates or reissues permittee's Adult-Use Cannabis Business Permit and Medical Marijuana Business Permit.

2. Revocation or termination of a permittee's co-located Adult-Use Cannabis Business Permit or Medical Marijuana Business Permit, shall also immediately revoke, terminate, or surrender permittee's co-located permit for the same premises, and permittee's ability to operate a Commercial Cannabis Business from that premises.

3. Surrender of the permittee's co-located Medical Marijuana Dispensary permit shall also immediately revoke, terminate, or surrender the permittee's co-located Adult-Use Cannabis Dispensary Permit for the same premises, and permittee's ability to operate a Commercial Cannabis Business from that premises.

E. Effect of suspension, revocation, or denial on State licenses.

1. Suspension of a permittee's State license shall immediately suspend the permittee's Adult-Use Cannabis Business Permit, any co-located Medical Marijuana Business Permits for the same premises, and permittee's ability to operate a Commercial Cannabis Business within the City, until the State, or its respective department or division, reinstates or reissues permittee's State license.

2. Revocation, termination, or surrender of a permittee's State license shall immediately suspend the permittee's Adult-Use Cannabis Business Permit, any co-located Medical Marijuana Business Permits for the same premises, and permittee's ability to operate a Commercial Cannabis Business within the City. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 13, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1560 Criminal penalty.

Any person who violates any provision of this Chapter is guilty of a misdemeanor, and upon conviction thereof, may be punished by a fine of not more than one thousand dollars ($1,000.00), or by imprisonment in the City or county jail for a period not exceeding six (6) months, or by both such fine and imprisonment. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 13, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1565 Administrative civil penalties.

A. Administrative citations. In addition to all other legal remedies at law, violations of this Chapter and building, health, and safety violations caused as a result of a violation of this Chapter are enforceable using the administrative citation procedures set forth in Chapter 9.65 of this Code.

1. Administrative citations for violations of this Chapter shall be set by resolution of the City Council pursuant to Chapter 9.65 of this Code for

any violation of the Long Beach Municipal Code that could potentially be criminally cited as an infraction.

2. Fines for illegal cannabis operations shall be set by resolution of the City Council pursuant to Chapter 9.65 of this Code.

B. Administrative penalties imposed pursuant to this Section also constitute a personal obligation on each person who causes, permits, maintains, conducts, or otherwise suffers or allows the nuisance to exist. In the event administrative penalties are imposed pursuant to this Section on two (2) or more persons for the same violation, all such persons are jointly and severally liable for the full amount of the penalties imposed.

C. In addition to any other remedy, the City may prosecute a civil action through the City Attorney to collect any administrative penalty imposed pursuant to this Chapter. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 13, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1570 Actions for injunctive relief and civil penalties.

A. As an alternative, or in addition to any other remedy, the City Attorney may enforce the provisions of this Chapter against any illegal cannabis operation and/or property owner in any court of competent jurisdiction. The City Attorney may apply to such court for an order seeking injunctive relief to abate or remove any nuisance caused, maintained, or permitted by an illegal cannabis operation and/or property owner, to restrain any illegal cannabis operation and/or property owner from taking any action contrary to the provisions of this Chapter or other applicable law; and/or to require any illegal cannabis operation and/or property owner to take any action to comply with this Chapter or other applicable law.

B. In any civil court action brought by the City Attorney pursuant to this Section in which the City succeeds in obtaining an order from the court, the City shall be entitled to recover from an illegal cannabis operation and/or property owner all of the City's costs of investigation, enforcement, abatement, destruction, and litigation, including but not limited to attorneys' fees.

C. Civil penalties.

1. The City is entitled to recover civil penalties against an illegal cannabis operation and/or property owner a maximum amount of five thousand dollars ($5,000.00) per violation for each day an illegal cannabis operation is operated, permitted, or maintained on the subject property, and the court may order the destruction of cannabis associated with that violation in accordance with California Health and Safety Code Section 11479.

2. In assessing the amount of a civil penalty, the court shall consider any one or more of the relevant circumstances presented by any of the parties to the case, including, but not limited to, the following:

a. The nature and seriousness of the violation;

b. Any economic benefit gained through the violation;

c. The number of violations;

d. The length of time over which the violation occurred;

e. The willfulness of the defendant's violation; and

f. The defendant's assets, liabilities, and net worth.

D. The City Attorney is authorized, without further direction from the City Council, to institute any civil actions permitted pursuant to this Section. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 13, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1575 Liens and special assessments.

A. Notwithstanding any other provision of this Chapter to the contrary, the costs incurred by the City in the abatement of a violation or nuisance may be placed against any privately owned and affected property as either a nuisance abatement lien or a special assessment lien pursuant to California Government Code Section 38771 et seq., as amended from time-to-time, or a lien pursuant to California Government Code Section 54988, as amended from time to time.

B. Liens. All actual costs required by this Section constitute a lien upon the property upon which the Adult-Use Cannabis Business is situ-

ated. The lien for any inspection, enforcement, or abatement costs may attach thirty (30) days after the responsible parties are notified of the costs, and will remain until the costs are paid or the premises is sold in payment thereof.

C. Lien enforcement. The City may enforce a lien under this Chapter in any manner permitted by law, including filing a civil action either to foreclose on its liens or to obtain a money judgment or both, or pursuing non-judicial foreclosure.

D. Conversion of liens. The City may elect, upon thirty (30) calendar days written notice to all known and record owners of the privately owned and affected property, to convert any nuisance abatement lien authorized by this Chapter to a special assessment lien, or vice versa. Costs recoverable under this Chapter may include those categories of costs and fees set forth in Civil Code Section 3496, regardless of the type of nuisance involved.

E. Special Assessment. If the property is specially assessed, said assessment may be collected at the same time and in the same manner as ordinary real property taxes are collected and will be subject to the same penalties and the same procedure and sale in case of delinquency as provided for ordinary real property taxes. All laws applicable to the levy, collection, and enforcement of real property taxes are applicable to the special assessment. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 13, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1580 Prohibited premises sites due to prior illegal cannabis operations.

A. The City may, in its sole discretion, take any action as specified in this subsection.

B. If the City discovers an illegal cannabis operation is currently and/or was operating within the previous sixty (60) days at or on a property, or any portion thereof, without valid State or City permits or licenses the City may take action as specified herein. The City shall notify the property owner in writing of their right to file, within fifteen (15) days after the date of mailing of the Notice, written request of a hearing to the City disputing the alleged illegal cannabis operation. Such written request shall set forth the specific ground(s) on which the dispute is based and the property owner shall pay to the City at the time of filing said written request a filing fee in an amount to be set by resolution of the City Council.

C. Failure to file the written request within the time period specified shall result in waiver of any right to dispute the allegation of operation of an illegal cannabis operation at the subject property. In the event of such waiver, no Commercial Cannabis Business, whether licensed or non-licensed, shall be permitted to operate at the subject property for a period of one (1) year from the 16th day after the date of mailing of the Notice.

D. The illegal cannabis operation and/or property owner shall have the right of appeal as set forth in Section 5.92.1445.

E. Whenever it has been determined that an illegal cannabis operation was and/or is in operation, no Commercial Cannabis Business, whether licensed or non-licensed, shall be permitted to operate at the subject property for a period of one (1) year from the effective date of such determination.

F. The prohibitions contained in this Section are sufficient grounds to deny any application for operation of a Commercial Cannabis Business or cannabis operation at the subject property received within the one (1) year time.

G. In the event the City revokes a Property Owner's Non-Residential Rental Business License for violating this Chapter, no Commercial Cannabis Business or cannabis operation, whether licensed or non-licensed, is permitted to operate at the subject property for a period of five (5) years from the effective date of revocation of the Non-Residential Rental Business License. Such revocation is sufficient grounds to deny any application for operation of a Commercial Cannabis Business or cannabis operation at the subject property received within the five (5) year period. This prohibition shall also remain in effect in the event a property owner (or an entity owned by or affiliated with such property owner) obtains another Non-Residential Rental Business License anytime

within the five (5) year period for the subject property. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 13, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1585 Disconnection of utilities.

A. To the maximum extent permitted by law, and in accordance with the processes thereof, the City may discontinue utility services to any premises upon which an illegal cannabis operation is operating.

B. Prior to the disconnection of utility services, the City must notify, wherever possible, the property owner and occupant of the building, structure, or premises upon which the illegal cannabis operation is operating, of the decision to disconnect the utility service(s) and the reason(s) for service suspension at least seven (7) calendar days before taking such action, unless a different period of notification is mandated by law; provided that the City's Building Official may dispense with any attempt at prior notification if, in the sole discretion of the Building Official, the nature or severity of any apparent dangerous hazard justifies such disconnection in accordance with other provisions of this Code.

C. In the event utilities are disconnected, the Building Official must notify the owner or occupant of the building, structure, or premises in writing of the disconnection as soon as practical thereafter.

D. Disconnected utilities shall not be re-established until an inspection has been made by the City's Building Official and the Building Official has determined that the unlawful illegal cannabis operation has ceased operations; that any imminent hazard has been abated or eliminated (if applicable); that the building complies with applicable law; and that any applicable fees for disconnection, reconnection, penalties, and/or other related services have been paid.

E. Removing or defacing a notice posted in relation to this provision shall constitute a separate and distinct violation of this Chapter. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 13, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1590 Medical Marijuana Task Force.

The authority, powers, and duties of the Medical Marijuana Task Force, established pursuant to Section 5.90.260 of this Code, are limited exclusively to the provisions in Chapter 5.90 and shall not extend to any applicant, permittee, Adult-Use Cannabis Business, and/or Medical Marijuana Business electing to engage in commercial cannabis activity pursuant to this Chapter. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 13, 2021; ORD-18-0015 § 6(Exh. F), 2018)

5.92.1595 Severability.

In the event, any provision in this Chapter is deemed invalid, illegal, or unenforceable, the validity, legality and enforceability of the remaining provisions shall not in any way be affected or impaired thereby and such provision is ineffective only to the extent of such invalidity, illegality, or unenforceability. (ORD-22-0015 § 4, 2022; ORD-21-0023 § 13, 2021; ORD-18-0015 § 6(Exh. F), 2018)

DIVISION XI. EQUITY PROGRAM*

5.92.1610 Equity employee eligibility.

A. To be eligible for the Equity Program as an equity employee, an individual shall satisfy the following criteria:

1. Be a natural person; and

2. In the last year, have had an annual family income at or below eighty percent (80%) Los Angeles - Long Beach - Glendale (Los Angeles County) Area Median Income (AMI) adjusted for family size, and a net worth below $250,000; and

3. The individual satisfies at least one of the following criteria:

a. Has lived in a Long Beach census tract for a minimum of three (3) years where at least fifty-one percent (51%) of current residents have a household income at or below eighty percent (80%) of the Los Angeles County Area Median Income; or

---

***Editor's note**—ORD-22-0015 § 4, adopted May 24, 2022, amended Div. XI in its entirety to read as herein set out. Former Div. XI, §§ 5.92.1610—5.92.1650 was entitled "Equity Assistance Program," and derived from: ORD-21-0023 §§ 7—10, 14, of 2021; and ORD-18-0015 § 6(Exh. F), of 2018.

b. Was arrested or convicted for a crime relating to the sale, possession, use, or cultivation of cannabis in the City of Long Beach prior to November 8, 2016 that could have been prosecuted as a misdemeanor or citation under current California law; or

c. Is a Long Beach resident currently receiving unemployment benefits. (ORD-22-0015 § 4, 2022)

5.92.1615 Equity applicant eligibility.

A. To be eligible for the Equity Program as an equity applicant, an individual shall satisfy the following criteria:

1. Be a natural person; and

2. In the last year, have had an annual family income at or below eighty percent (80%) Los Angeles - Long Beach - Glendale (Los Angeles County) Area Median Income (AMI) adjusted for family size, and a net worth below $250,000; and

3. Has lived in a Long Beach census tract for a minimum of five (5) years, either consecutively or in total, where at least fifty-one percent (51%) of current residents have a household income at or below eighty percent (80%) of the Los Angeles County Area Median Income; and

4. Meets at least one of the following criteria:

a. During the period 1971—2016, was arrested for, convicted of, or adjudged to be a ward of the juvenile court for any crime under the laws of California or any other jurisdiction relating to the sale, possession, use, manufacture, or cultivation of cannabis; or

b. Has a parent, sibling, or child who, during the period of 1971—2016, was arrested for, convicted of, or adjudged to be a ward of the juvenile court for any crime under the laws of California or any other jurisdiction relating to the sale, possession, use, manufacture, or cultivation of cannabis. (ORD-22-0015 § 4, 2022)

5.92.1620 Equity business eligibility.

To be eligible for the Equity Program as an Equity Business, majority ownership of the business must be held by equity applicant(s). If the cannabis business has one equity applicant listed as an owner, a minimum of fifty-one percent (51%) ownership in the cannabis business must be held by the equity applicant. If the cannabis business will have multiple equity applicants listed as owners of the cannabis business, any one (1) of the equity applicants must hold majority ownership interest in the cannabis business. (ORD-22-0015 § 4, 2022)

5.92.1625 Application required.

A. Any person seeking to be qualified as a Verified Equity Applicant or Verified Equity Employee shall submit a written application to the City, signed under penalty of perjury, using the form approved by the City for that purpose and in the manner required by the Director of Economic Development. All applications shall contain, at a minimum, the following information and documents:

1. Applicant Information.

a. The legal name of the applicant.

b. The applicant's mailing address, e-mail address, and telephone number.

2. Proof of income.

a. All income documents must list the first and last name of the equity applicant and be effective within the last year.

b. A minimum of last year's federal tax return and at least one (1) of the following approved documents listed below shall be considered acceptable proof of residency:

(i) Wage and tax statement (W-2, 1099, or other Federal income reporting document);

(ii) Two (2) months of most recent pay stubs; or

(iii) Proof of current eligibility for General Relief (GR), CalFresh (Food Stamps), Medical/CalWORKs, Supplemental Security Income (SSI), or Social Security Disability (SSDI).

3. Proof of Residency.

a. A minimum of two (2) of the supporting documents listed below, evidencing a minimum of five (5) years of residency, whether consecutive or in total, shall be considered acceptable proof of residency. All residency documents must list the first and last name of the equity applicant and the

Long Beach residence address in a qualifying Long Beach census tract pursuant to Section 5.92.1620.A.3:

(i) California Driver's record or permanent Driver's License or AB 60 Driver's License; or

(ii) California identification card record; or

(iii) Property tax billing and payments from the LA County Assessor; or

(iv) Verified copies of State or Federal income tax returns where a Long Beach address within a qualifying Long Beach census tracts pursuant to Section 5.92.1620.A.3 is listed as a primary address; or

(v) School records; or

(vi) Medical records; or

(vii) Banking records; or

(viii) Long Beach Housing Authority records; or

(ix) Utility, cable, or internet company billing and payment covering any month in each of the five (5) years.

4. Proof of Cannabis Criminalization.

a. Proof of cannabis arrest or conviction should be demonstrated through court documents, probation documents, Department of Corrections or Federal Bureau of Prisons documentation. Documentation needs to include the following:

(i) Date of the offense or arrest.

(ii) Charges filed.

(iii) Name of defendant.

(iv) Exact location of offense or arrest that occurred in Long Beach, CA. (ORD-22-0015 § 4, 2022)

5.92.1630 Incomplete applications.

A. Upon review of an application, if an application is determined to be incomplete, the City shall provide notice to the applicant, who shall have ninety (90) calendar days to correct all deficiencies in the application.

B. If the applicant fails to correct said deficiencies within the ninety (90) day period, the application shall be deemed abandoned, void, and of no further force and effect. The applicant may reapply at any time following an abandoned application.

C. The Director of Economic Development may extend the deadline upon showing of good cause by the applicant for the inability to provide all required information by the deadline, if a written request for an extension is received no later than ten (10) calendar days prior to the deadline. For purposes of this subsection, the term "good cause" shall mean the applicant's failure to complete the application process occurred due to circumstances outside of the applicant's control. (ORD-22-0015 § 4, 2022)

5.92.1635 Application rejection.

Upon review of an application, if an application is determined to not meet the criteria to be verified as an equity applicant or equity employee, the City shall have the right to reject said application. All rejections are final and may not be appealed. An equity applicant may reapply at any time after having an application rejected. (ORD-22-0015 § 4, 2022)

5.92.1640 Assistance available to equity applicants.

A sole equity applicant that intends to apply for an Adult-Use Cannabis Business Permit as an equity business, shall be eligible to receive direct technical assistance prior to the application process to acquire the knowledge and/or skills necessary in order to gain entry to, and to successfully operate in, the regulated cannabis marketplace. Direct technical assistance includes:

A. One-on-one consulting and training, including direct interactions in group settings, to provide equity applicants and licensees the technical knowledge and expertise necessary to facilitate business ownership and employment in the cannabis industry.

B. Small business support services, professional mentorship services, training and education regarding state cannabis licensing and regulatory requirements, manufacturing assistance, financial management, and business resilience such as emer-

gency preparedness. (ORD-22-0015 § 4, 2022)

5.92.1645 Assistance available to equity businesses.

A sole equity applicant or group of equity applicants applying for an Adult-Use Cannabis Business Permit as an equity business, shall be eligible to receive the following assistance during the application process: expedited Adult-Use Cannabis Business Permit application review; Adult-Use Cannabis Business Permit application and compliance assistance; cultivation business license tax deferrals during the first year; expedited building plan check review; waivers of City permitting fees; and direct grants as provided by the State of California. (ORD-22-0015 § 4, 2022)

5.92.1650 Assistance per household.

Assistance as part of the Equity Program will only be provided to one (1) verified equity applicant per household. Assistance will not be provided to multiple equity applicants living within the same household and/or the equity applicant is listed as a dependent on another equity applicants tax filings. (ORD-22-0015 § 4, 2022)

5.92.1655 Equity business transfer of ownership requirements.

Equity Businesses are prohibited from transferring majority ownership interest to a non-equity applicant, for ten years after the issuance of the Adult-Use Cannabis Business License for that cannabis business. Exceptions may be granted by the City Manager, or their designee, for an extenuating circumstance preventing an equity applicant(s) from continuing to hold ownership in the Cannabis Business. (ORD-22-0015 § 4, 2022)

5.92.1660 Requirements for all Adult-Use Cannabis Businesses.

Adult-Use Cannabis Businesses that do not qualify for the Equity Program shall comply with the following requirements:

A. Employment.

1. Adult-Use Cannabis Businesses that do not qualify for the Equity Program shall employ equity employees for a minimum of forty percent (40%) of total annual work hours performed at the business. Upon a showing of good cause by an Adult-Use Cannabis Business, the City Manager may waive the employment requirement.

2. Compliance. To ensure compliance with this requirement, Adult-Use Cannabis Businesses shall submit certified payroll records to the City Manager at such frequency as determined by the City Manager. Adult-Use Cannabis Businesses that fail to meet this requirement may be subject to penalties pursuant to this Chapter, including but not limited to, suspension or revocation of the Adult-Use Cannabis Business Permit pursuant to Section 5.92.1540. To avoid penalties for noncompliance, a business may demonstrate that it utilized its best efforts to hire and employ individuals that meet the criteria in Section 5.92.1620.A by detailing all efforts made and affixing documents to support such efforts.

B. Support for equity businesses. Adult-Use Cannabis Business shall submit a Community Reinvestment and Small Business Incubation Plan to the City describing how they intend to support equity businesses, adjacent neighborhoods, and communities within the eligible social equity program census tracts. Support for equity businesses may include, but shall not be limited to, business plan guidance at the time of application, business operations consulting, and industry specific technical assistance, shelf space for cannabis goods cultivated or manufactured by equity businesses, or any other form of support by an Adult-Use Cannabis Business consistent with the intent and spirit of this Division.

C. Labor peace agreement. Any Adult-Use Cannabis Business with two (2) or more employees (as defined by California Business and Professions Code 26051.5(a)(5)) shall provide a statement at the time of application that the applicant will enter into, or demonstrate that it has already entered into, and abide by the terms of a labor peace agreement. (ORD-22-0015 § 4, 2022)

5.92.1665 Authority to develop and implement Equity Program.

The City Manager is authorized to make reasonable rules, policies, and procedures consistent

with the intent and spirit of this Division to develop and implement an administrative program for this Equity Program. Regulations promulgated by the City Manager become effective upon date of publication, unless specified otherwise. (ORD-22-0015 § 4, 2022)

DIVISION XII. DELIVERY-ONLY DISPENSARY OPERATING CONDITIONS

In addition to the general operating requirements set forth in Division III of this Chapter, this Division provides additional requirements for Delivery-Only Dispensaries.
(ORD-24-0024 § 4, 2024)

5.92.1710 Compliance.

Delivery-Only Dispensaries may sell, distribute, dispense, provide, deliver, or transport Cannabis, only in accordance with all applicable laws and regulations, including but not limited to, this Code, any regulations implemented by the Department of Cannabis Control, California Business and Professions Code Sections 26000 et seq., and all other applicable State, federal and local laws and regulations.
(ORD-24-0024 § 4, 2024)

5.92.1715 Hours of operation.

Delivery-Only Dispensaries may only conduct deliveries between the hours of 9:00 a.m. to 10:00 p.m. up to seven (7) days per week.
(ORD-24-0024 § 4, 2024)

5.92.1720 Point-of-sale tracking required.

A Delivery-Only Dispensary shall facilitate the dispensing, making available, sale, and delivery of cannabis goods with a technology platform that uses point-of-sale technology to track, and database technology to record and store, the following information for each transaction involving the exchange of cannabis goods between the Delivery-Only Dispensary and customer:

A. The date and time of transaction.

B. The first name and employee number of the Delivery-Only Dispensary employee who processed the sale of cannabis goods on behalf of the Delivery-Only Dispensary.

C. A list of all the cannabis goods purchased, including the quantity purchased.

D. The total amount paid for the sale, including the individual prices paid for cannabis or cannabis products purchased, and any amounts paid for taxes.
(ORD-24-0024 § 4, 2024)

5.92.1725 Taxes.

Transactions for Delivery-Only Dispensaries shall be taxed at the non-medical marijuana tax rate pursuant to Section 3.80.261.C.2 of this Code, unless the Dispensary is able to prove by reasonable and verifiable standards which portion of the gross receipts are tied to the sale of the adult-use cannabis goods and which portion are tied to the sale of medicinal cannabis goods.
(ORD-24-0024 § 4, 2024)

5.92.1730 Cannabis goods.

A. A Delivery-Only Dispensary shall not make any cannabis goods available for sale or delivery to a customer unless the cannabis goods were received from a State licensed Distributor.

B. Prior to making cannabis goods available to customers, Delivery-Only Dispensaries shall ensure that all cannabis goods dispensed, sold, delivered, or made available by the Delivery-Only Dispensary, at a minimum:

1. Are packaged and sealed in tamper-evident packaging that includes a unique identifier, such as a batch number and lot number or bar code, to identify and track the cannabis goods.

2. For manufactured cannabis products, that the product complies with all requirements of California Business and Professions Code Section 26130 and all other applicable laws and regulations.

3. The Dispensary has verified that the cannabis goods have not exceeded their expiration or sell-by date, if one is provided.

4. For edible cannabis product, that the products comply with State packaging and labeling requirements, including, but not limited to:

a. Edible cannabis products shall not exceed 10 milligrams of tetrahydrocannabinol (THC) per serving.

b. The THC content for the cannabis product in its entirety is printed on the package.

c. All applicable requirements pursuant to California Business and Professions Code Sections 26120 and 26121 and any regulations promulgated thereunder.

C. Secure storage of cannabis goods. Cannabis goods that are not used for immediate sale shall be stored in a limited-access area, such as a secure and locked room, safe, or vault, and in a manner reasonably designed to prevent diversion, theft, and loss.

D. Edible cannabis products.

1. Delivery-Only Dispensaries may only dispense, sell, provide, or make available those edible cannabis products authorized by the State Department of Public Health and the City Health Officer.

2. The sale, distribution, and delivery of edible cannabis products shall be conducted in a manner that complies with all applicable food safety laws for the protection of humans consuming cannabis.

E. No sales of expired cannabis products. Delivery-Only Dispensaries are prohibited from selling any expired cannabis goods. It is unlawful for any person to alter, edit, or adjust, in any manner, an expiration date on any item or cannabis product once affixed by its Manufacturer.
(ORD-24-0024 § 4, 2024)

5.92.1735 No free adult-use cannabis goods.

A Delivery-Only Dispensary shall not provide free adult-use cannabis goods to any person. A Delivery-Only Dispensary shall not allow individuals that are not employed by the Delivery-Only Dispensary to provide free adult-use cannabis goods to any person on the permitted premises. In this Section, "free adult-use cannabis goods" shall mean any amount of cannabis goods provided to any person without cost or payment in exchange of any other thing of value.
(ORD-24-0024 § 4, 2024)

5.92.1740 Delivery services.

In addition to the requirements set forth in this Chapter for Delivery-Only Dispensaries, the delivery of cannabis goods shall be subject to the following requirements:

A. Compliance. Delivery services shall be conducted in accordance with any relevant State and local laws and regulations, any applicable local laws in the delivery location, and any conditions imposed upon a Delivery-Only Dispensary.

B. No person shall conduct sales of cannabis goods exclusively by delivery, unless they are a verified equity business.

C. No Delivery-Only Dispensary shall open their site to the public or conduct any retail sales of any goods and services to any person on the Delivery-Only Dispensary site.

D. Any application for a Delivery-Only Dispensary shall include a statement as to whether the proposed use will include delivery of cannabis goods to customers.

E. Vehicle standards. A Delivery-Only Dispensary shall only allow delivery of cannabis goods in a vehicle that:

1. Is capable of securing (locking) the cannabis goods during transportation.

2. Is capable of being time and/or temperature controlled, if perishable cannabis goods are being transported.

3. Does not display advertising or symbols visible from the exterior of the vehicle that suggest the vehicle is used for cannabis delivery or affiliation with a Delivery-Only Dispensary.

4. Shall only be operated by the delivery employee of the Delivery-Only Dispensary.

5. Only the licensee or an employee of the Delivery-Only Dispensary licensee for whom delivery is being performed shall be in the delivery vehicle.

F. Inspections. Any motor vehicle used by a Delivery-Only Dispensary to deliver cannabis goods is subject to inspection by the City Manager or Chief of Police and may be stopped at the premises or during the delivery for inspection.

G. Delivery employees. Every delivery employee of a Delivery-Only Dispensary shall be at least twenty-one (21) years of age and shall have a valid California Driver's License.

H. Documentation during transport. Delivery employees of a Delivery-Only Dispensary shall carry a physical or electronic copy of the delivery request receipt with details regarding the delivery, a copy of the Delivery-Only Dispensary's current permits and/or licenses required by the State and City, the employee's government-issued identification, and an identification badge provided by the Delivery-Only Dispensary. All documentation shall be made available upon request to the City Manager or Chief of Police.

I. A Delivery-Only Dispensary shall maintain a database, and provide to the City Manager upon verbal or written request, a list of delivery employees and vehicles authorized to conduct deliveries on behalf of the Delivery-Only Dispensary.

J. Limitations.

1. While making deliveries, a Delivery-Only Dispensary's delivery employee shall not carry cannabis goods worth more than limits imposed by the State at any time. This value shall be determined using the current retail price of all cannabis goods carried by the delivery employee.

2. Direct route only. Except where a delivery employee requires rest, fuel, vehicle repair, or where the road conditions make the continued use of the road unsafe, impossible, or impracticable, a delivery employee may only travel to and from the Delivery-Only Dispensary, to the delivery address, and between delivery addresses while delivering cannabis goods.

3. Delivery-Only Dispensaries and delivery employees may only deliver cannabis goods to customers within a city or county that does not expressly prohibit such delivery by ordinance.

4. Consumption prohibited. No person shall consume or otherwise ingest cannabis goods, alcohol, any controlled substance, or intoxicants while transporting or delivering cannabis goods.

5. The Delivery-Only Dispensary shall prepare a delivery request receipt for each delivery of cannabis goods that shall include the following:

a. The name and address of the Delivery-Only Dispensary;

b. The first name and employee number of the Delivery-Only Dispensary's delivery employee who delivered the order;

c. The first name and employee number of the Delivery-Only Dispensary's employee who prepared the order for delivery;

d. The first name of the customer and a Delivery-Only Dispensary-assigned customer number for the person who requested the delivery;

e. The date and time the delivery request was made;

f. The delivery address;

g. A detailed description of all cannabis goods requested for delivery. The description shall include the weight, volume, or any other accurate measure of the amount of all cannabis goods requested;

h. The total amount paid for the delivery, including any taxes or fees, the cost of the cannabis goods, and any other charges related to the delivery; and

i. Upon delivery, the date and time the delivery was made, and the signature of the customer who received the delivery.

6. A vehicle used for the delivery of cannabis goods shall be outfitted with a dedicated Global Positioning System (GPS) device for identifying the geographic location of the delivery vehicle in compliance with all applicable State laws and regulations.

a. The dedicated GPS device must be owned by the Delivery-Only Dispensary and used for delivery only. A personal or business phone or tablet is not an acceptable GPS device.

b. The device shall be either permanently or temporarily affixed to the delivery vehicle, shall remain active, and inside of the delivery vehicle at all times during delivery.

c. At all times, the Delivery-Only Dispensary shall be able to identify the geographic location of all delivery vehicles that are making deliveries for

the Dispensary and shall provide that information to the City Manager or Chief of Police upon request. The history of all locations traveled to by a delivery employee while engaging in delivery shall be maintained by the licensee for a minimum of 90 days.

K. All cannabis and all cannabis products being delivered must be obtained from the site of the licensed Delivery-Only Dispensary that is authorized to deliver cannabis. No cannabis or cannabis products may be delivered from any other facility, such as a separate storage facility or a cannabis product manufacturing facility. Loading and unloading of cannabis products must only take place within the designated and approved secured loading area.

L. Deliveries Facilitated by Technology Platforms. A delivery license retailer shall not sell or otherwise transfer any cannabis goods to a customer through the use of an unlicensed third party, intermediary business, broker, or any other business or entity.

M. Delivery-Only Dispensary site buildings. A Delivery-Only Dispensary site must comply with the following requirements:

1. All entrances into the buildings on the Delivery-Only site must be locked at all times with entry controlled by the Delivery-Only Dispensary's managers and staff.

2. All areas in which cannabis or cannabis products are located in any building on the Delivery-Only Dispensary site must be separated from the main entrance and lobby, and must be secured by a lock accessible only to managers and staff of the Delivery-Only Dispensary.

3. Each Delivery-Only Dispensary shall have adequate storage space in a building for all its cannabis and cannabis products. The storage areas must not be shared with another delivery-only cannabis dispensary permittee, must be separated from the main entrance and lobby and must be secured by a lock accessible only to managers and staff of the Delivery-Only Dispensary.

4. Each Delivery-Only Dispensary site must ensure the secure transfer of cannabis or cannabis products between a vehicle and the restricted area in which the products are stored.
(ORD-24-0024 § 4, 2024)

5.92.1745 Responsible Vendor Training Pilot Program.

A. Purpose and Intent. Recognizing the potential harms and public health implications associated with cannabis use, the purpose of this Section is to promote public health and safety to reduce the likelihood of the problematic use of cannabis by proactively requiring that all customer-facing employees and managers of Delivery-Only Dispensaries learn the necessary skills to protect customers, the public, employees of the Delivery-Only Dispensary, and Delivery-Only Dispensaries through a Responsible Vendor Training Program.

B. Compliance. Every customer-facing manager and employee of a permitted Delivery-Only Dispensary shall enroll in the Department of Health and Human Services' standardized training for Delivery-Only Dispensaries within ninety (90) days of the establishment of the City's Responsible Vendor Training Pilot Program. Upon completion of such training, employees and managers shall receive written confirmation from the Department of Health and Human Services of successful completion of the program. Delivery-Only Dispensaries shall keep a copy of said written confirmation on the permitted premises for every customer-facing employee and manager.

C. New employees and managers. Any newly hired manager or employee of a permitted Delivery-Only Dispensary shall successfully complete the Responsible Vendor Training Pilot Program within sixty (60) days of said individual's first day of employment.

D. Renewal of Training. After initial successful completion of the Responsible Vendor Pilot Training Program, every manager and employee of a Delivery-Only Dispensary shall successfully complete the Responsible Vendor Training Pilot Program every twenty-four (24) months.

E. Online or in-person training is at the discretion of the Department of Health and Human

Services. Nothing in this Section shall prevent the City from becoming a training provider under any similar program for Delivery-Only Dispensaries implemented by the State.

F. Within three (3) years of the establishment of the program, the City Council will consider the available data and determine whether and how to continue the program. This Section shall remain in effect until revoked by the City Council. (ORD-24-0024 § 4, 2024)

DIVISION XIII. CANNABIS SPECIAL EVENTS

5.92.1810 Compliance.

Cannabis special events may be permitted only in accordance with all applicable laws and regulations, including but not limited to, this code, California Business and Professions Code Sections 26000 et seq., Department of Cannabis Control regulations including Code of California Regulations Title 4, Chapter 5, and all other applicable State, federal and local laws and regulations. (ORD-26-0006 § 4, 2026)

5.92.1815 Special Event Permit and Application.

A. The cannabis special event organizer must apply for a special event permit in accordance with Chapter 5.60 of this code, if the event is to take place in, on or upon any City street, sidewalk, alley, park, way, pier, public place, public property or public right-of-way which is owned or controlled by the City. However, the provisions of Paragraph B of Section 5.60.020 do not apply to any cannabis special event.

B. If the event is to take place on private property, the event organizer must apply for an occasional event permit in accordance with Section 5.72.130 of this code. (ORD-26-0006 § 4, 2026)

5.92.1820 Number of Special Event Permits Per Year.

The City Council may adopt a resolution, at its discretion, to designate the maximum number of cannabis special events permits that may be issued to each cannabis special event organizer each year. (ORD-26-0006 § 4, 2026)

5.92.1825 State Approval.

The cannabis special event organizer must obtain a Cannabis Event Organizer License and Temporary Cannabis Event License from the Department of Cannabis Control, in accordance with the California Code of Regulations, Title 4, Chapter 5. (ORD-26-0006 § 4, 2026)

5.92.1830 Temporary Waiver of Smoking in Public Spaces.

An authorized cannabis special event shall be exempt from the provisions of Chapter 8.68 - Smoking in Public Places of this code for the duration of cannabis special event. (ORD-26-0006 § 4, 2026)

5.92.1835 Local Retailer Requirements.

All sales of cannabis goods at cannabis special events shall only be conducted by a cannabis special event vendor. All gross receipts from cannabis special event sales must be reported to the City in accordance with Section 3.80.261(H) of this code. (ORD-26-0006 § 4, 2026)

5.92.1840 Equity Plan.

The cannabis special event organizer shall submit an Equity Plan as part of their special event permit application. The plan must outline how the organizer will support verified equity applicants and equity businesses. Support strategies may include, but are not limited to, the following:

A. Offer reduced event vendor fees, exhibitor fees, booth fees, or sponsor fees;

B. Display and sell cannabis products manufactured by verified equity businesses; and/or

C. Allocate vendor spaces for licensed equity dispensaries (retailers);

D. Provide mentorship opportunities during event day.

For purposes of this section, support for equity applicants and equity businesses may include

those verified in a different jurisdiction with a local equity program, as defined in Section 26240(e) of the California Business and Professions Code.

The City Manager may authorize an exemption to the Equity Plan requirement if the cannabis special event organizer is unable to meet one or more of the above requirements due to limited availability or participation from verified equity applicants or equity businesses, the cannabis special event organizer may submit a written justification detailing their outreach efforts and any barriers encountered. The City may, at its discretion, waive or modify the Equity Plan requirements on a case-by-case basis. (ORD-26-0006 § 4, 2026)

5.92.1845 Promotion of Responsible Cannabis Consumption.

The cannabis special event organizer shall be responsible for promoting responsible cannabis consumption and safe alternatives to driving, including ride-share options or designated drivers. Printed signage shall be posted in areas with high visibility at the cannabis special event. In addition to onsite signage, digital promotion shall be advertised in advance of the cannabis special event. (ORD-26-0006 § 4, 2026)

5.92.1850 Enforcement.

The City Manager is authorized to take the following actions, as applicable:

A. Require cannabis sales or consumption to cease, at any time during the event, to protect public health or safety and safeguard compliance with applicable State and City laws and regulations.

B. Require the cannabis special event organizer to expel an event participant if they are found selling cannabis, cannabis products, or cannabis-related accessories in a manner inconsistent with applicable State or City laws and regulations.

C. In addition to the above, a cannabis special event organizer and cannabis special event vendor are subject enforcement and penalties including, but not limited to, Division X of this Chapter and Chapter 5.60 of this code. (ORD-26-0006 § 4, 2026)

CHAPTER 5.93 GROCERY AND DRUG STORE STAFFING STANDARDS FOR SELF-SERVICE CHECKOUT STATIONS

5.93.010 Purpose.

It is in the public's interest to require grocery and drug stores to adopt effective preventative measures that will address the impacts on public health and safety that retail theft creates within the context of self-service checkout operations where theft commonly occurs but remains largely unchecked and underreported. Regulating the staffing of self-service checkout operations will address the hostile and unsafe working conditions for employees, and unsafe shopping environments for customers. (ORD-25-0010 § 1, 2025)

5.93.020 Short Title.

This ordinance shall constitute the "Self-Service Checkout Staffing Requirements." (ORD-25-0010 § 1, 2025)

5.93.030 Definitions.

For the purpose of this Ordinance:

"City" means the City of Long Beach.

"Customer" means an individual who buys consumer goods from a Drug Retail Establishment or Food Retail Establishment.

"Drug Retail Establishment" means a retail store that sells a variety of prescription and non-prescription medicines and miscellaneous items, including drugs, pharmaceuticals, sundries, fresh produce, meats, poultry, fish, deli products, dairy products, canned foods, dry foods, beverages, prepared foods, and other merchandise.

"Employee" means a worker employed directly by a hiring entity at a Drug Retail Establishment or Food Retail Establishment. Employee does not include managers, supervisors or confidential employees.

"Food Retail Establishment" means a retail store that is either: (1) over fifteen thousand (15,000)

square feet in size and sells primarily household foodstuff for offsite including fresh produce, meats, poultry, fish, deli products, dairy products, canned foods, dry foods, beverages, baked foods and/or prepared foods (other household supplies or products are secondary to the primary purpose of food sales); or (2) over eighty-five thousand (85,000) square feet and with ten percent (10%) of their sales floor area dedicated to the sale of non-taxable merchandise including the sale of fresh produce, meats, poultry, fish, deli products, dairy products, canned foods, dry foods, beverages, baked foods and/or prepared foods.

"Non-Self-Service Checkout station" means a station that is not a Self-Service Checkout and at which an employee provides human assistance to a customer for scanning, bagging, and/or accepting payment for the customer's purchases.

"Self-Service Checkout" means the automated processes that enable customers to scan, bag, and pay for their purchases without human assistance, including, but not limited to, fixed self-checkout, scan-and-go self-checkout, or mobile self-checkout.

"Self-Service Checkout station" means a station at a fixed location within a Drug Retail Establishment or Food Retail Establishment at which a customer can engage in a Self-Service Checkout for the customer's purchases. (ORD-25-0010 § 1, 2025)

5.93.040 Self-Service Checkout requirement.

A. Drug Retail Establishments and Food Retail Establishments that provide Self-Service Checkout options shall provide at least one Non-Self-Service Checkout station staffed by an Employee that is available during the times that a Self-Service Checkout option is available to customers, and Drug Retail Establishments and Food Retail Establishments shall establish, implement, and advertise limits to Self-Service Checkout to purchases of no more than fifteen (15) items.

B. Drug Retail Establishments and Food Retail Establishments shall have an established workforce policy that prohibits customers from using a Self-Service Checkout station to purchase either of the following:

1. Items that require customers to provide a form of identification, including, but not limited to, alcohol and tobacco products.

2. Items subject to special theft-deterrent measures that are affixed to the item, including, but not limited to, electronic article surveillance, ink, or other tags, or items placed in locked cabinets, that require the intervention of an Employee to remove them before purchase.

C. Drug Retail Establishments and Food Retail Establishments shall notify the public of this Ordinance by prominently posting signage in a location accessible to customers, which includes either a link or QR code to the City of Long Beach website regarding this Ordinance, a summary of the public's rights under this Ordinance, and enforcement options available to the public.

D. Self-Service Checkout stations shall be located to enable observation and surveillance from both employees of Drug Retail Establishments and Food Retail Establishments and local law enforcement. (ORD-25-0010 § 1, 2025)

5.93.050 Self-Service Checkout staffing requirement.

A. Drug Retail Establishments and Food Retail Establishments that provide Self-Service Checkout options shall assign at least one (1) Employee to supervise the Self-Service Checkout operation at all times that Self-Service Checkout is in operation during business hours. The assigned Employee shall have no other work responsibilities that would interfere with their ability to maintain direct visual inspection and surveillance of the Self-Service Checkout operations.

B. In the event a Drug Retail Establishment or Food Retail Establishment operates two (2) or more Self-Service Checkout stations, the Drug Retail Establishment or Food Retail Establishment shall maintain a staffing ratio of at least one (1) Employee for every three (3) Self-Service Checkout Stations (1:3 ratio). The manner in which this standard is implemented may take into account

operational and logistical feasibility. (ORD-25-0010 § 1, 2025)

5.93.060 Enforcement.

A. Any Customer or Employee of a Drug Retail Establishment or Food Retail Establishment may bring a private right of action in the Superior Court of the State of California against a Drug Retail Establishment or Food Retail Establishment for violating this Chapter and, upon prevailing, may be awarded:

1. A civil penalty for each violation of this Chapter of one hundred dollars ($100) for each employee of the Drug Retail Establishment or Food Retail Establishment. Each day the violation is not cured, the penalty shall increase an additional one hundred dollars ($100) per employee per day up to a limit of one thousand dollars ($1,000) per employee per day for each day in which the violation remains uncured.

2. Attorneys' fees and costs. (ORD-25-0010 § 1, 2025)

5.93.070 Retaliatory action prohibited.

No Drug Retail Establishment or Food Retail Establishment shall terminate, reduce in compensation, or otherwise discriminate against any Employee for seeking to enforce their rights under this Chapter by any lawful means, for participating in proceedings related to this Chapter, for opposing any practice proscribed by this Chapter, or for otherwise asserting rights under this Chapter. (ORD-25-0010 § 1, 2025)

5.93.080 Severability.

If any section, subsection, sentence, clause or phrase of this Ordinance or Chapter is for any reason held to be invalid or unconstitutional by a court of competent jurisdiction, such a decision shall not affect the validity of the remaining portions of this Ordinance. The City Council hereby declares that it would have adopted this Ordinance, and each and every section, subsection, sentence, clause and phrase thereof not declared invalid or unconstitutional, without regard to whether any portion of the Ordinance would be subsequently declared invalid or unconstitutional. (ORD-25-0010 § 1, 2025)

CHAPTER 5.94 RESERVED*

CHAPTER 5.95 THIRD-PARTY FOOD DELIVERY SERVICE FEES†

5.95.010 Purpose.

The use of third-party food delivery platforms is widespread throughout the City of Long Beach. In addition to fees that may be charged to the customer, the food delivery platforms also charge fees to restaurants. These restaurants have limited bargaining power to negotiate lower fees with the food delivery platforms and must accept these fees or risk closure. Restaurants are essential to the public health and welfare, and additionally help the local economy by providing jobs and serving as commercial anchors in neighborhoods across the City of Long Beach. This ordinance places a fifteen percent (15%) cap on the fees a food delivery platform may charge restaurants for basic delivery and listing services, while allowing food delivery platforms to charge additional fees to restaurants for additional services. (ORD-26-0008 § 1, 2026)

5.95.020 Definitions.

A. "City" means the City of Long Beach.

B. "Delivery Fee" means a fee charged by a Third-Party Food Delivery Service for providing a Retail Food Establishment with a service that delivers food and beverages from such establishments to customers. The term does not include any other fee or cost that may be charged by a Third-Party Delivery Service to a Retail Food Establishment, such as fees for listing, marketing,

---

***Editor's note**—ORD-21-0012 § 4, adopted April 13, 2021, repealed Ch. 5.94 §§ 5.94.010—5.94.050 entitled "Sale of Certain Flavored Tobacco Products," which derived from ORD-19-0033 § 2, 2019.

†**Editor's note**—ORD-26-0008 § 1, adopted April 21, 2026, amended Ch. 5.95 in its entirety to read as herein set out. Former Ch. 5.95, §§ 5.95.010—5.95.050, pertained to similar subject matter, and derived from ORD-21-0005(Emerg.) § 1, 2021.

or advertising the Retail Food Establishment on the Third-Party Food Delivery Service platform or fees related to processing the Online Order.

C. "Online Order" means an order placed by a customer through or with the assistance of a platform provided by a Third-Party Food Delivery Service, including a telephone order, for delivery or pick-up within the City.

D. "Purchase Price" means the price, as listed on the menu of the Retail Food Establishment, for the items contained in an Online Order, minus any applicable coupon or promotional discount provided to the customer by the Retail Food Establishment through the Third-Party Food Delivery Service. This definition does not include taxes, gratuities, and any other fees or costs that may make up the total amount charged to the customer of an Online Order.

E. "Core delivery service" means a service that: (1) lists a Retail Food Establishment, and makes the Retail Food Establishment discoverable, on all modalities or platforms offered by a Third-Party Food Delivery Service, including but not limited to any website, mobile application, or other internet service where a Third-Party Food Delivery Service lists Retail Food Establishments, and (2) facilitates and/or performs the delivery (through employees or independent contractors of the Third-Party Food Delivery Service and/or such establishments) of food and/or beverages from Retail Food Establishments to customers. Core delivery service does not include any other service that may be provided by a Third-Party Food Delivery Service to a Retail Food Establishment, including but not limited to advertising services, search engine optimization, business consulting, or credit card processing.

F. "Retail Food Establishment" means a restaurant, delicatessen, bakery, coffee shop, or other eat-in or carry-out service of processed or prepared raw and ready-to-eat food or beverages.

G. "Third-Party Food Delivery Service" means any website, mobile application, or other internet service that offers or arranges for the sale of food and beverages prepared by, and the delivery or pick-up of food and beverages from, Retail Food Establishments located in the City. (ORD-26-0008 § 1, 2026)

5.95.030 Prohibitions.

A. No Third-Party Food Delivery Service may charge a Retail Food Establishment a fee, commission, or charge per online order that totals more than fifteen percent (15%) of the total Purchase Price of the Online Order.

B. No Third-Party Food Delivery Service may charge a Retail Food Establishment a fee, commission, or charge that exceeds fifteen percent (15%) of the total Purchase Price of Online Orders to that Retail Food Establishment processed through the Third-Party Food Delivery Service during the time period covered by the fee, commission, or charge.

C. Beginning on January 1, 2026, the fee limits in subsections (A) and (B) of this Section 5.95.030 shall not apply to a Third-Party Food Delivery Service that does both of the following:

1. offers all Retail Food Establishments the option to obtain core delivery service for a total fee, commission, or charge not to exceed 15% of the Purchase Price of the Online Order, without requiring the purchase of additional services; and

2. no later than December 1, 2026, notifies all Retail Food Establishments that have an existing contract with the Third-Party Delivery Service of the option described in subsection (C)(1).

D. Contracts between a Third-Party Food Delivery Service and a Retail Food Establishment shall clearly define the fees, commissions, or charges associated with contracted services. For example, if a Retail Food Establishment enters into a contract with a Third-Party Food Delivery Service for core delivery service only, that contract shall clearly state a fee, commission, or charge of 15% of the Purchase Price for core delivery service.

E. It shall be unlawful for a Third-Party Food Delivery Service to charge a Retail Food Establishment any amount designated as a Delivery Fee for an Online Order that does not involve the delivery of food or beverages.

F. It shall be unlawful for a Third-Party Food Delivery Service to charge a customer any Pur-

chase Price for a food or beverage item that is higher than the price set by the Retail Food Establishment on the Third-Party Food Delivery Service platform or, if no price is set by the Retail Food Establishment on the Third-Party Food Delivery Service platform, the price listed on the Retail Food Establishment's own menu.

G. It shall be unlawful for a Third-Party Food Delivery Service to reduce the compensation rates paid to the Third-Party Food Delivery Service drivers, or to garnish gratuities, as a result of any fee limitations instituted by this section. (ORD-26-0008 § 1, 2026)

5.95.040 Required disclosures.

At the time a final price is disclosed to a customer for the intended purchase and delivery of food from a restaurant through a Third-Party Food Delivery Service and before that transaction or Online Order is completed by the customer, the Third-Party Food Delivery Service shall disclose to the customer, in plain language and in a conspicuous manner, any commission, fee, or any other monetary payment charged to the customer by the Third-Party Food Delivery Service. (ORD-26-0008 § 1, 2026)

5.95.050 Enforcement.

Each day that a violation continues shall constitute a separate and distinct offense. A violation of this Chapter is subject to the following:

A. An action in the Superior Court of the State of California to recover actual damages resulting from a violation of this Chapter.

B. Reasonable attorneys' fees and costs awarded by a court to a plaintiff that prevails in an action against a Third-Party Food Delivery Service. If a plaintiff fails to prevail against a Third-Party Food Delivery Service, a court may award reasonable attorneys' fees and costs to the Third-Party Food Delivery Service upon a determination by the court that the plaintiff's action was frivolous.

C. A civil action alleging a violation of any provision of this article shall commence only after the following requirements have been met:

1. Written notice is provided to the Third-Party Delivery Service of the provisions of the Chapter alleged to have been violated and the facts to support the alleged violation; and

2. The Third-Party Food Delivery Service is provided at least 15 days from the date of the written notice to cure any alleged violation.

D. A criminal penalty for each offense pursuant to Chapter 1.32 of this Code. (ORD-26-0008 § 1, 2026)

5.95.060 Scope of Ordinance.

In enacting this Ordinance, the City Council intends to amend only those words, phrases, paragraphs, subsections, sections, articles, numbers, punctuation marks, charts, diagrams, or any other constituent parts of the Municipal Code that are explicitly shown in this ordinance as additions, deletions, City Council amendment additions, and City Council amendment deletions in accordance with the "Note" that appears under the official title of the ordinance. (ORD-26-0008 § 1, 2026)

CHAPTER 5.96 RESERVED*

*Editor's note—ORD-23-0048 § 2, adopted Nov 14, 2023, repealed Ch. 5.96, §§ 5.96.010—5.96.110 entitled "Healthcare Workers Minimum Wage," which derived from ORD-22-0022 § 2, 2022.

Title 6

ANIMALS

Chapter 6.04 Animal Shelter

6.04.010 Established.
6.04.020 Director designated.
6.04.025 Person responsible—Defined.
6.04.030 Impoundment—Authority.
6.04.040 Impoundment—Duty.
6.04.050 Impoundment—Care of animals.
6.04.060 Voluntary impoundment.
6.04.070 Impoundment—Disposal.
6.04.080 Impoundment—Redemption.
6.04.090 Redemption—Microchips.
6.04.100 lnterference with officers or shelter.

Chapter 6.08 Dog and Cat Licensing

6.08.010 License—Required.
6.08.015 Penalty.
6.08.020 Annexed territory—County license acceptable.
6.08.030 License —Issuance—Records.
6.08.040 License—Late penalty.
6.08.050 Tag—Replacement.
6.08.060 Exemptions.
6.08.070 License—Counterfeit prohibited.
6.08.080 Exhibit of receipt or license required.
6.08.090 Unaltered cats—License prohibited.

Chapter 6.12 Rabies Control

6.12.010 Rabies report responsibility.
6.12.020 Suspected infection.
6.12.030 Refusal to report prohibited.
6.12.040 Dog or other animal bite—Report.
6.12.050 Dog or other animal bite—Identification of animal.
6.12.060 Dog or other animal bite—Quarantine.
6.12.070 Dog or other animal bite—Quarantine order.
6.12.080 Dog or other animal bite—Redemption from animal shelter.
6.12.090 Impoundment of diseased animals.
6.12.100 Contact with rabid animal.

6.12.110 Inoculation—Required.
6.12.120 Inoculation—Certificate.
6.12.130 Inoculation—Required for license issuance.
6.12.140 Inoculation—Record.
6.12.150 Rabies vaccination certificates.

Chapter 6.16 Animal Regulation

6.16.010 Livestock—Running at large—Distance from habitation.
6.16.020 Livestock—Driving in street.
6.16.030 Dangerous animals—Permit required.
6.16.040 Dangerous animals—Permit issuance.
6.16.050 Selling animals on public place.
6.16.060 Animal shop—Location restricted.
6.16.061 Animal shop—Report of sales to City.
6.16.062 Animal shop—Animal sales.
6.16.070 Herding on unenclosed private property.
6.16.080 Breeding prohibited.
6.16.085 Unaltered dogs and cats prohibited.
6.16.090 Dogs prohibited on beaches or schoolgrounds.
6.16.100 Dog leash required.
6.16.110 Dog noise—Prohibited.
6.16.120 Dog noise—Enforcement.
6.16.130 Food business—Keeping animals prohibited.
6.16.140 Food business—Permitting animal at large prohibited.
6.16.150 Food business—Allowing animal on-premises prohibited.
6.16.160 Possession without owner's consent.
6.16.170 Dog and cat hospital—Location.
6.16.180 Dog and cat hospital—Defined.
6.16.190 Restricted dog breeding and dog and cat transfer.
6.16.200 Defecation—Removal required.
6.16.210 Enforcement.
6.16.220 Animal sale refunds.
6.16.230 Manure removal required.
6.16.240 Dead animal disposal.
6.16.250 Vicious animals—Defined.
6.16.260 Impoundment of vicious animal.
6.16.270 Vicious animal hearing.
6.16.280 Disposition of vicious animals.
6.16.290 Issuance of rules and regulations—Summary destruction.

6.16.300 Liability for charges.
6.16.310 Dog exercise area on the beach.
6.16.320 Administrative citation—Service procedures.
6.16.330 Administrative citation—Contents of notice.
6.16.340 Administrative citation satisfaction.
6.16.350 Administrative citation—Appeal.
6.16.360 Administrative citation—Hardship waiver.
6.16.370 Administrative citation—Appeal hearing procedure.
6.16.380 Administrative citation—Hearing Officer decision.
6.16.390 Administrative citation—Failure to pay fines.
6.16.400 Administrative citation—Dismissal.
6.16.410 Administrative citation—Judicial review.

Chapter 6.20 Fowl, Rabbits and Goats

6.20.010 Definitions.
6.20.020 Fowl—Number restricted.
6.20.030 Fowl—Distance from dwelling.
6.20.040 Crowing fowl prohibited.
6.20.050 Fowl—Dealers exempt.
6.20.060 Fowl—Enclosure sanitation.
6.20.070 Fowl—Running at large and keeping in front yard prohibited.
6.20.080 Fowl—Impoundment—Food and water.
6.20.090 Fowl—Impoundment—Coop size.
6.20.100 Fowl—Wing locking prohibited.
6.20.110 Fowl and rabbits—Artificial coloring prohibited.
6.20.120 Chickens—Permit required.
6.20.130 Chickens—Enclosure and shelter.
6.20.140 Chickens—Distance from dwelling.
6.20.150 Goats—Permit and microchip required.
6.20.160 Goats—Personal consumption only.
6.20.170 Goats—Number.
6.20.180 Goats—Neutered males.
6.20.190 Goats—Distance from dwelling.
6.20.200 Goats—Enclosure and shelter.
6.20.210 Rabbits or goats—Enclosure sanitation.
6.20.220 Rabbits and goats—Running at large and keeping in front yard prohibited.

Chapter 6.22 Insect Control Measures

6.22.010 Insect control measures.

Chapter 6.24 Pigeons and Bees

6.24.010 Beehives.
6.24.020 Pigeon keeping.

Chapter 6.28 Police Animals

6.28.010 Protection of animals utilized by Police Department.

CHAPTER 6.04 ANIMAL SHELTER*

6.04.010 Established.

There shall be provided a suitable enclosure or place for the purpose of keeping and safely holding animals impounded, which shall be designated as the animal shelter; provided, that one (1) or more suitable enclosures or places may be provided for the purpose of keeping and safely holding animals impounded, which places shall be designated as branches of the City animal shelter and shall be included within the meanings of the words animal shelter wherever the name may appear in this Title. (ORD-09-0022, § 2, 2009)

6.04.020 Director designated.

Whenever in this Title 6 of the Long Beach Municipal Code the words "Director" or "Director of Animal Care Services Bureau" are used, they shall mean the Director of Animal Care Services Bureau of the Department of Health and Human Services or his/her designee. (ORD-09-0022, § 2, 2009)

6.04.025 Person responsible—Defined.

Whenever in this Title 6 of the Long Beach Municipal Code, the words "person responsible" are used, they shall mean any person owning, having a proprietary interest in harboring or having the care, charge, control, custody or possession of an animal. (ORD-09-0022, § 2, 2009)

6.04.030 Impoundment—Authority.

The Director shall take up, impound and safely keep any and all of the animals enumerated in this Chapter and found running at large, pastured, herded, staked or tied in any street, park, or other public place, or upon any private property, in violation of any of the provisions of this Title 6. (ORD-09-0022, § 2, 2009)

6.04.040 Impoundment—Duty.

It shall be the duty of the Director and of every Police Officer to take up and deliver to the animal shelter any animal, regulated pursuant to Title 6 of the Long Beach Municipal Code, found to be at large, loose and/or unattended, by a person responsible for that animal, upon any public or private property within the City in violation of any of the provisions of this Title 6. (ORD-09-0022, § 2, 2009)

6.04.050 Impoundment—Care of animals.

The Director shall safely keep all animals, regulated pursuant to Title 6 of the Long Beach Municipal Code, impounded at the animal shelter and shall furnish the same all necessary food and water, and shall give the same ordinary attention as may appear to be reasonably required for the welfare of such animals. (ORD-09-0022, § 2, 2009)

6.04.060 Voluntary impoundment.

The person responsible for an animal may, with the consent of the Director, place the custody of such animal with said official for the purpose of obtaining his/her assistance in procuring a new owner for the animal under such terms and conditions as that official, in his/her sole and absolute discretion, shall determine. The act of the person responsible in so placing the custody of the animal with the Director shall, in no event and under no circumstances, obligate that official of the City to procure a new owner for the animal and, in the event such official so determines, the animal may be destroyed and disposition made of the carcass. By placing the animal in the custody of the Director in accordance with this Section, the person responsible thereof relinquishes and conveys to the City all his/her right, title and interest in and to the animal and to the proceeds of any sale of the animal thereafter made, and neither the City, nor the official shall be required to make an accounting for any such proceeds. If the Director elects to accept the custody of the animal, he/she shall require the person responsible thereof to evidence in writing his/her knowledge and acceptance of the provisions of this Section. Notwithstanding

---

***Editor's note**—ORD-09-0022, § 2 adopted Aug. 4, 2009, amended Ch. 6.04 in its entirety to read as herein set out. Former Ch. 6.04, §§ 6.04.010—6.04-120 pertained to similar subject matter and derived from Prior code §§ 5610, 5610.1, 5610.10, 5610.40—5610.48; Ord. C-5403 §§ 3—5, 1978; Ord. C-5645 § 1 (part), 1980; Ord. C-5808 § 1, 1982; Ord. C-6147 § 1, 1985; and Ord. C-6530 § 1, 1988.

anything in this Section to the contrary, in the event the Director has not procured a new owner for the animal and the same has not been destroyed, the person so placing the animal in custody may redeem and reclaim it from the custody of the City upon the payment of a fee established by the City Council by resolution. The person responsible for the unwanted animal may deliver the animal to the animal shelter subject to a fee determined by the City Council by resolution, or, in the alternative, the person responsible may request that a representative of the Animal Care Services Bureau pick up the animal at a fee established by the City Council by resolution. (ORD-09-0022, § 2, 2009)

6.04.070 Impoundment—Disposal.

Upon the impounding of any animal, the Director shall immediately notify the person responsible thereof, if known, to redeem the animal within five (5) days following the date of impoundment; and unless timely redeemed, the Director shall sell the animal at public or private sale, at such price as he/she may deem reasonable. At the time of sale of any impounded animal, the purchaser shall pay a spay and neuter fee established by the City Council by resolution. All such fees shall be deposited in the City of Long Beach Animal Care Services Bureau Spay and Neuter Trust Account. In the event a purchaser cannot be obtained for any animal, the Director shall destroy such animal and dispose of the carcass. The Director may, without waiting for such five (5) day period to elapse, cause any impounded animal to be destroyed when he/she reasonably determines that such animal is unfit for further use by reason of its having been injured, having become infected with a dangerous or communicable disease, having become incurably crippled or having become infirmed on account of advanced age. The Director may likewise so destroy any impounded animal upon receiving the written, telephonic, or verbal directive from a duly licensed veterinarian that such animal is afflicted with a painful and incurable disease. (ORD-09-0022, § 2, 2009)

6.04.080 Impoundment—Redemption.

The person responsible for any impounded animal, regulated pursuant to Title 6 of the Long Beach Municipal Code, shall have the right to redeem and to take possession of the animal at any time prior to the sale or destruction thereof upon payment to the Director of the costs and charges incident to the impounding, taking and keeping thereof, and upon satisfactory proof of the ownership and right to possession of the animal. As an incident to the redemption of any dog, the person responsible shall also pay the license tax plus any penalty, determined by the City Council by resolution, for any dog for which a license tag has not been issued for the current year, and shall also provide satisfactory evidence of compliance with Section 6.12.110. (ORD-09-0022, § 2, 2009)

6.04.090 Redemption—Microchips.

When the Director determines that an impounded animal is without microchip identification, in addition to the requirements set forth in Section 6.04.080, the person responsible shall, prior to redemption, pay a fee at his/her own expense to have microchip identification implanted into the animal. The Director shall provide the person responsible with a written statement confirming that a microchip, approved by the Animal Care Services Bureau, has been implanted by the Director's designee only after the procedure is complete. The identifying microchip information shall be maintained by the Animal Care Services Bureau. Fees for impounding animals shall be those established by the City Council by resolution. (ORD-09-0022, § 2, 2009)

6.04.100 lnterference with officers or shelter.

No person shall conceal or attempt to conceal, remove/retrieve or attempt to remove/retrieve any animal regulated pursuant to Title 6 from the Director, or from any other officer authorized to enforce any of the provisions of this Title 6, while engaged in the capture or in conveying to the animal shelter any such animal, or to interfere in any manner with said persons in the performance

of any duty incident to their office, or to conceal or attempt to conceal, remove/retrieve or attempt to remove/retrieve any animal which has been impounded in the animal shelter. (ORD-09-0022, § 2, 2009)

CHAPTER 6.08 DOG AND CAT LICENSING*

6.08.010 License—Required.

A. Dog license. No person responsible for any dog shall have such dog, male or female, over the age of four (4) months, within the City without at all times having upon such dog a collar or harness to which shall be securely fastened a tag as provided in this Chapter. Said tag may be issued at any time during the calendar year and may be issued for a period of twelve (12) months. The tag shall be obtained from the Director, inscribed with the letters and words "LONG BEACH" and with the serial number of the tag. The tax shall be sufficient only during the period for which the tag is issued.

B. Cat license. No person responsible for any cat shall have such cat, male or female, over the age of four (4) months, within the City without at all times having upon such cat either a tag as provided in Subsection B.1. below, or a microchip as provided in Subsection B.2. below.

1. Tag. The tag shall be securely fastened to a collar or harness as provided in this Chapter. Said tag may be issued at any time during the calendar year and may be issued for a period of twelve (12) months. The tag shall be obtained from the Director, inscribed with the letters and words "LONG BEACH" and with the serial number of the tag. The tag shall be sufficient only during the period for which the tag is issued.

2. Microchip. In place of the tag and collar described in Subsection B.1. above, a person responsible for a cat may instead ensure that the cat bears an identifiable microchip. For the purposes of this Chapter, the term "microchip" shall mean the injection of an identification chip below the skin of an animal performed by a veterinarian, registered veterinary technician or other qualified staff. The person responsible for such cat shall obtain an annual license at such times and in the manner as specified in Section 6.08.030. (ORD-10-0017, § 1, 2010)

6.08.015 Penalty.

A. Violation of, or failure to comply with any provision of Chapter 6.08 of this Code constitutes a criminal offense punishable as an infraction for the first offense, and a misdemeanor for any subsequent offense committed within a twelve-month period, with criminal penalties set forth in Chapter 1.32 of this Code.

B. In addition to criminal penalties, persons who violate any provision of this Chapter may be assessed administrative fines and penalties established pursuant to Chapter 6.16 of this Code. (ORD-10-0017, § 1, 2010)

6.08.020 Annexed territory—County license acceptable.

It shall not be necessary for a person who is a resident of any area at the time the area is annexed to the City and who at said time is a person responsible for a dog or cat for which a license fee has been paid and a dog or cat license issued under and by virtue of the ordinances of the County to obtain a license for the animal as is provided in Section 6.08.010, except that after the effective date of an annexation such person shall cause the dog or cat to have upon it a collar, harness or similar device to which shall be attached the County dog or cat license tag or such other official indicia as is issued by the County, or, in the case of a cat, a microchip; but such person shall be subject to all provisions of Section 6.08.010, from and after the expiration date of the County dog or cat license. (ORD-10-0017, § 1, 2010)

***Editor's note—**ORD-10-0017 § 1, adopted June 15, 2010, amended Ch. 6.08 in its entirety to read as herein set out. Former Ch. 6.08, §§ 6.08.010—6.08-080, was entitled "Dog Licensing", and derived from: Prior code §§ 5610.12—5610.20; Ord. C-5403 §§ 1, 2, 1978; Ord. C-5528 § 1, 1979; Ord. C-5645 § 1 (part), 1980; Ord. C-5721 § 1, 1981; Ord. C-6096 § 1 (part), 1984; Ord. C-6876 § 2, 1991; and ORD-09-0022, § 3 adopted Aug. 4, 2009.

State law reference—Provisions on the licensing of dogs, Food and Agric. Code § 30501 et seq.

6.08.030 License —Issuance—Records.

A. Tags for dogs or cats. The Director is authorized and directed to procure on an as needed basis such quantity of tags as may be required for dogs and cats in the City, which tags shall be plainly inscribed as set forth in this Chapter, and shall be valid for only the period for which they are issued. The Director shall furnish such tags to the person(s) responsible for dogs and cats in the City for fees which shall be established by the City Council by resolution for each unaltered dog and for each altered dog whose spaying or neutering is verified by a certificate from a licensed veterinarian and for each altered cat. The Director shall keep a register, wherein shall be entered the name of every person to whom a dog or cat tag has been issued, together with the serial number, and the period for which it is valid, the date of issuance, the address of applicant, and any other data deemed pertinent. Such tag shall be good only for use upon the dog or cat described in such application.

B. Microchipped cats. The Director shall issue a certificate of license, which shall be valid for only the period for which it is issued. The Director shall furnish such licenses to the person(s) responsible for cats in the City for fees which shall be established by the City Council by resolution for each microchipped cat. The Director shall keep a register, wherein shall be entered the name of every person to whom a license has been issued, together with the microchip number and the period for which the license is valid, the date of issuance, the address of applicant, and any other data deemed pertinent. Such license shall be good only for use upon the cat described in such application. (ORD-10-0017, § 1, 2010)

6.08.040 License—Late penalty.

Penalties, which shall be established by the City Council by resolution, shall be added to the license fees established by the City Council by resolution for dogs and cats, if the required tag for a dog or cat is secured more than sixty (60) days subsequent to the required renewal date; provided, that no penalty shall be added for the securing of any license secured within sixty (60) days after the date on which the dog or cat for which the license is secured becomes subject to the provisions of this Chapter, nor shall any penalty be added for a license secured within sixty (60) days after the applicant becomes the person responsible for the dog or cat for which the license is bought. (ORD-10-0017, § 1, 2010)

6.08.050 Tag—Replacement.

In case of loss or destruction of any tag required by the provisions of this Chapter, a duplicate shall be issued by the Director upon request and upon the payment of the fee established therefore by the City Council by resolution. (ORD-10-0017, § 1, 2010)

6.08.060 Exemptions.

No license fee or tax shall be required for the issuance of a tag for any dog owned as a guide dog, signal dog and/or service dog, as those terms are currently defined in California Penal Code Section 365.5 or as may be amended in the future. The Director shall annually issue tags free of charge to persons responsible for having the custody and control of such dogs. (ORD-10-0017, § 1, 2010)

6.08.070 License—Counterfeit prohibited.

No person shall imitate or counterfeit any tag, license, receipt or registration certificate required or issued pursuant to this Chapter or use any imitation or counterfeit of any such tag, license, receipt or certificate. (ORD-10-0017, § 1, 2010)

6.08.080 Exhibit of receipt or license required.

No person responsible for any dog or cat subject to license under this Chapter shall refuse to show upon demand to the Director, any Animal Care Services Bureau enforcement officer or inspector, or any Police Officer, the City license or the license tag for any duly registered dog or cat. (ORD-10-0017, § 1, 2010)

6.08.090 Unaltered cats—License prohibited.

No license shall be issued for an unaltered cat pursuant to this Chapter, unless the cat is certified

by a licensed veterinarian as not being suitable for spaying or neutering due to health reasons pursuant to Section 6.16.085. (ORD-10-0017, § 1, 2010)

CHAPTER 6.12 RABIES CONTROL*

6.12.010 Rabies report responsibility.

Whenever a person responsible for a dog or other animal observes or learns that such dog or animal shows symptoms of rabies, or acts in a manner which would lead to a reasonable suspicion that the dog or animal may have rabies, that person shall immediately notify the Health Officer, and it shall be the duty of the Health Officer, when called upon, to examine or have examined the dog or animal and to ascertain whether or not the dog or animal is afflicted with rabies, and no person responsible for such dog or animal shall fail, refuse or neglect to notify the Health Officer. (ORD-09-0022, § 4, 2009)

6.12.020 Suspected infection.

Whenever the Director, or any other person, captures a dog or any other animal suspected of having rabies, he/she shall deliver the same to the animal shelter or shall confine the same in some safe place and shall immediately report the same to the Health Officer, and it shall be the duty of the Health Officer, when called upon, to examine or cause to be examined any such dog or other animal and to ascertain whether or not any such dog or animal is afflicted with rabies. (ORD-09-0022, § 4, 2009)

6.12.030 Refusal to report prohibited.

No person responsible for any dog or other animal showing symptoms of rabies, or that acts in a manner which would lead to a reasonable suspicion that such dog or animal may have rabies, or whenever it is shown that any dog or other animal has bitten any person, shall refuse or fail to submit such dog or animal to inspection or examination by the Health Officer or his/her representative in order to ascertain whether or not such dog or animal is afflicted with rabies. (ORD-09-0022, § 4, 2009)

6.12.040 Dog or other animal bite—Report.

Any person having knowledge that any dog or other animal has bitten any person shall immediately and without delay advise the Director or the Police Department of such fact, furnishing such information as he/she may possess relative to the identity of the animal, the person responsible for the animal and the person bitten. (ORD-09-0022, § 4, 2009)

6.12.050 Dog or other animal bite—Identification of animal.

Upon receipt of a report as described in Section 6.12.040, the Director shall undertake all measures necessary to the identification of the subject dog or other animal and the person responsible for the dog or other animal and upon the identification of the dog, or other animal, or person responsible, or both, shall inform the Health Officer thereof. (ORD-09-0022, § 4, 2009)

6.12.060 Dog or other animal bite—Quarantine.

A. Upon written order of the Health Officer or his/her authorized representative so directing any person responsible for a dog or other animal having bitten any person shall cause the animal to be kept in strict quarantine in a closed, fenced yard, kennel or animal shelter for a period of ten (10) days and shall permit the Health Officer or his/her authorized representative to inspect or examine the dog or other animal at any time during the period.

B. The Health Officer shall have the power, in his/her discretion, to quarantine the animal in the animal shelter. (ORD-09-0022, § 4, 2009)

6.12.070 Dog or other animal bite—Quarantine order.

A. Upon the issuance of a written order of quarantine as described in Section 6.12.060, the

---

***Editor's note**—ORD-09-0022, § 4 adopted Aug. 4, 2009, amended Ch. 6.12 in its entirety to read as herein set out. Former Ch. 6.12, §§ 6.12.010—6.12-150 pertained to similar subject matter and derived from Prior code §§ 5610.29—5610.36, 5610.38, 5610.39, 5610.53—5610.56; Ord. C-5645 § 1 (part), 1980; and Ord. C-6194 § 1, 1985.

Cross reference—Provisions on the City Health Officer, see the City Charter.

State law reference—Provisions on rabies control, Health and Saf. Code § 1911 et seq.

person to whom such order is directed shall permit the Health Officer or his/her authorized representative to post a printed or written notice of the quarantine order upon or about the premises wherein the subject dog or other animal is confined.

B. No person shall obscure, deface, render illegible or remove the posted notice during the quarantine period. (ORD-09-0022, § 4, 2009)

6.12.080 Dog or other animal bite—Redemption from animal shelter.

Whenever any dog or other animal is quarantined in the animal shelter for inspection, examination or observation for rabies, and at the expiration of the period of quarantine, the dog or other animal is determined by the Health Officer or his/her representative to be free from said disease, then the Director shall immediately cause the person responsible for the dog or animal, if known, to be notified to redeem the dog or other animal from the animal shelter within the time and in the same manner provided for the redemption of other impounded dogs or animals. The person responsible for any animal which has been quarantined in the animal shelter shall pay to the Director the boarding fee established by the City Council by resolution for the period the animal is held under quarantine in the animal shelter. If the dog or other animal is not redeemed after the period of such quarantine within the time specified for redemption of impounded animals, then the dog or other animal shall be disposed of in the same manner provided for the disposition of other impounded dogs or animals. (ORD-09-0022, § 4, 2009)

6.12.090 Impoundment of diseased animals.

If it appears to the Health Officer or his/her representative that any dog or other animal has rabies, it shall be his/her duty to immediately quarantine the dog or other animal at the animal shelter, subject to his/her further orders, or to notify the Director to destroy such animal and dispose of its carcass. (ORD-09-0022, § 4, 2009)

6.12.100 Contact with rabid animal.

Every dog or other animal which has been bitten by a rabid dog or other rabid animal, or which has come in contact or consorted with a rabid dog or other rabid animal, or which has been harbored in the same home, apartment, kennel or part of any premises with a rabid dog or other rabid animal, shall be kept isolated and under quarantine for ninety (90) days in a veterinary hospital approved by the Health Officer, or surrendered to the Director to be destroyed. (ORD-09-0022, § 4, 2009)

6.12.110 Inoculation—Required.

No person responsible for any dog or cat shall permit a dog or cat four (4) months of age or older to be in the City unless such person has procured a canine anti-rabies vaccine for the dog or a feline anti-rabies vaccine for the cat from a State licensed veterinarian unless:

A. Such dog or cat is less than four (4) months of age; or

B. Such dog or cat is in a state of health that inoculation at the time would be hazardous to the life of the dog or cat, as evidenced by the written, dated and signed statement of a licensed veterinarian, and approved by the authority of the Health Officer. Such statement shall provide exemption from the requirements of this Section for a maximum period of one (1) year. The Health Officer shall not authorize the endorsement of the statement for any period of time unless the illness of the dog or cat requires it. (ORD-10-0017, § 2, 2010; ORD-09-0022, § 4, 2009)

6.12.120 Inoculation—Certificate.

Every person responsible for a dog or cat in the City, whenever such dog or cat is required to be inoculated by the provisions of Section 6.12.110, shall have such dog or cat inoculated against rabies by a licensed veterinarian. The inoculation by any person licensed to practice veterinary medicine in the State, or in the event the dog or cat is inoculated in any State other than California, then the inoculation by any person authorized or permitted by such State to practice veterinary medi-

cine, shall be deemed to be inoculated by a licensed veterinarian. The Health Officer shall, at such intervals of time as he deems necessary, provide for the rabies inoculation of such dog or cat upon payment of a fee established therefore by the City Council by resolution. The Health Officer shall issue to such person a certificate of inoculation, signed under the authority of the Health Officer, stating thereon the breed and description of the dog or cat, the date of the inoculation, and the type of vaccine used. (ORD-10-0017, § 3, 2010; ORD-09-0022, § 4, 2009)

6.12.130 Inoculation—Required for license issuance.

Every person responsible for any dog or cat, and who is required by the provisions of Chapter 6.08 to secure a license tag for such dog or cat, shall provide evidence satisfactory to the licensing authority of compliance with Section 6.12.110. A certificate of inoculation or a statement of health containing the information required by Sections 6.12.110 and 6.12.120, signed under the authority of the Health Officer and a licensed veterinarian, shall be deemed satisfactory evidence of compliance with Section 6.12.110. No dog or cat license shall be issued unless and until the requirements of this Section are fulfilled. (ORD-10-0017, § 4, 2010; ORD-09-0022, § 4, 2009)

6.12.140 Inoculation—Record.

The Director shall, at the time a dog or cat license is issued, record on the register, provided for by Section 6.08.030, the date of inoculation, the type of vaccine used, or the reason no vaccine was used. (ORD-10-0017, § 5, 2010; ORD-09-0022, § 4, 2009)

6.12.150 Rabies vaccination certificates.

Every person practicing veterinary medicine in the City of Long Beach who vaccinates a dog or cat with rabies vaccine shall issue to the person responsible to whom he or she delivers the dog or cat the original certificate and to the Director of the Animal Care Services Bureau of the City of Long Beach a copy of every rabies immunization certificate issued by such veterinarian. The certificate should contain the following:

A. Name, address and telephone number of the person responsible for the dog or cat;

B. A description of the dog or cat, including breed, color, sex and age;

C. The date of rabies immunization;

D. The type of rabies vaccine administered;

E. The name of the manufacturer and the lot number of the vaccine used;

F. The veterinarian's name, address and telephone number either stamped, printed or typed on the certificate;

G. The signature of the veterinarian who administered the vaccine or the signature of a person authorized by the veterinarian to sign the certificate. (ORD-10-0017, § 6, 2010; ORD-09-0022, § 4, 2009)

CHAPTER 6.16 ANIMAL REGULATION*

6.16.010 Livestock—Running at large—Distance from habitation.

No person responsible for any ox, steer, bull, cow, calf, horse, mare, stallion, colt, jack, mule, sheep or hog, shall permit the same, of any thereof, to run at large or pasture, herd, stake, tie or stable any thereof in any of the streets, avenues, places, lanes, alleys, parks or other public places in the City, or tie, stake, pasture, stable, or otherwise keep any thereof upon any private property in the City so as to permit any thereof to approach nearer than one hundred feet (100') to any building used or occupied or designed for use and occupancy as a residence for human habitation other than such building so occupied by the person responsible for any such animal, and other than such building, the occupant of which continues his or her consent to the closer approach of any such animal. (ORD-15-0017, § 1, 2015; ORD-09-0022, § 5, 2009)

***State law reference**—Provisions on animal regulation, Food and Agric. Code § 16301 et seq.

6.16.020 Livestock—Driving in street.

No person shall drive or conduct along any street, avenue, place, lane, alley, park or other public place any ox, steer, bull, cow, calf, horse, stallion, colt, jack, mule, sheep, goat or hog without having such animal or animals enclosed in some conveyance or tied or otherwise attached to some person or vehicle in such manner that such animal or animals cannot run at large or enter upon private property, or drive or conduct a herd or any number of such animals along any street or other public place without obtaining a written permit therefore from the Director, and such permit shall be granted only upon the applicant therefore depositing with the Director a fee established by the City Council by resolution. (ORD-09-0022, § 5, 2009)

6.16.030 Dangerous animals—Permit required.

No person shall have, keep, maintain, or have in possession or under control, within the City, any elephant, bear, hippopotamus, rhinoceros, lion, tiger, leopard, wolf, reptile, serpent or any dangerous or carnivorous wild animal without first applying to and receiving from the Animal Care Services Bureau a permit so to do. (ORD-09-0022, § 5, 2009)

6.16.040 Dangerous animals—Permit issuance.

The Director is invested with the authority to issue permits for the keeping or maintaining of any of the animals, reptiles or serpents enumerated and described in Section 6.16.030 to any person when, in the opinion of the Director, any such animal or animals, serpents or reptiles may be kept or maintained without menacing the safety of any person or property; provided, however, that the Director may require any such animal or animals, serpents or reptiles to be properly caged or tethered, and may make and issue additional rules and regulations regulating the keeping or maintaining of any such animals, reptiles or serpents, and may revoke any such permit for the violation of any other provisions of this Chapter or any of the rules and regulations issued by the Director, or when, in his or her opinion, the safety of any person or property is menaced by the keeping of any such animal. (ORD-09-0022, § 5, 2009)

6.16.050 Selling animals on public place.

No person shall sell, offer or display for sale, barter or give any live animal to any person on any public street or other public place within the City other than a person maintaining a fixed place of business wherein such animals are sold. (ORD-09-0022, § 5, 2009)

6.16.060 Animal shop—Location restricted.

No person shall establish, conduct or maintain any store or place of business in which dogs, cats, guinea pigs, mice, rats or other domestic pets are legally sold or kept for sale, or carry on the business of dealing in any of such animals within fifty feet (50') of any residence, dwelling house, hotel, theater, or within five hundred feet (500') of any schoolhouse or church, unless such person has been issued a permit to breed at a residence under Section 6.16.190 of this Chapter. (ORD-09-0022, § 5, 2009)

6.16.061 Animal shop—Report of sales to City.

Every person who owns, operates or maintains an animal shop, as described in Section 6.16.060, shall report to the Director the name and address of the purchaser of every dog sold by the animal shop, along with the breed, age and description of the animal, on forms provided by the City. The report shall be transmitted to the Director no later than ten (10) days from the date of sale. The shop may charge a fee of up to one dollar ($1.00) to the purchaser to cover the cost of the report. (ORD-09-0022, § 5, 2009)

6.16.062 Animal shop—Animal sales.

A. No person or animal shop shall engage in the sale, barter, giving away, or transferring of dogs, cats, or rabbits unless the person or animal shop sells, barters, gives away, or transfers:

1. A dog or cat bred and reared within the City in compliance with Section 6.16.190;

2. A dog, cat, or rabbit obtained from a publicly operated animal shelter; or

3. A dog, cat, or rabbit obtained from a private humane society or duly incorporated organization devoted to the rescue, care, and adoption of stray, abandoned, or surrendered dogs, cats, and/or rabbits.

B. Nothing in this Section shall prevent an animal shop from providing space and appropriate care for dogs, cats, and rabbits harbored by an animal shelter or duly incorporated organization devoted to the rescue, care, and adoption of stray, abandoned, or surrendered dogs, cats, and/or rabbits for the purpose of engaging in the retail sale of those animals.

C. Certificate of source.

1. An animal shop shall post in a conspicuous place, on or within three (3) feet of each animal's kennel, cage, or enclosure, a certificate of source for each dog, cat, or rabbit offered for sale demonstrating the dog, cat, or rabbit was obtained in compliance with this Section.

2. Upon sale or transfer, the animal shop shall provide a copy of the certificate of source to the purchaser or transferee.

D. Temporary exemption. Unless otherwise extended by the City Council, the provisions of this Section shall not be applicable until October 1, 2015. (ORD-15-0008, § 2, 2015)

6.16.070 Herding on unenclosed private property.

No person, as principal, agent, employee, or otherwise, shall herd any of the animals mentioned in this Chapter on any unenclosed private property. (ORD-09-0022, § 5, 2009)

6.16.080 Breeding prohibited.

No person, as principal, agent, employee or otherwise, shall breed any dog, cat or other animal at any place within the City, except as provided in Section 6.16.190 of this Chapter. "Breeding" shall be deemed to have occurred upon the production of offspring, whether such offspring result from sexual activity or artificial insemination, and whether such sexual activity was intentional or the result of improper confinement. (ORD-09-0022, § 5, 2009)

6.16.085 Unaltered dogs and cats prohibited.

A. No person responsible for a cat over the age of four (4) months or a dog over the age of six (6) months shall allow such cat or dog to remain unaltered except as described in Subsection 6.16.085.B.

B. Exceptions to the spay or neuter requirements identified in Subsection 6.16.085.A are:

1. A dog or cat that is incapable of breeding, as determined in accordance with Subsection 6.16.085.C.

2. A dog or cat that is medically unsuited to undergo a spay or neuter procedure, as determined in accordance with Subsection 6.16.085.C.

3. A dog that is undergoing or has received appropriate training and certification by a recognized agency, if such certification is available, and will be or is utilized or is retired from use:

a. By a law enforcement agency for law enforcement activities;

b. By a search and rescue agency for search and rescue activities;

c. As a service animal, such as a guide animal, hearing animal, assistance animal, seizure alert animal, or social/therapy animal approved by the Animal Care Services Bureau; or

d. As breeding stock for dogs described in Subsection 6.16.085.B.3 by a recognized agency or organization approved by the Director.

e. For each of the above, the owner shall provide proof to the satisfaction of the Director with each application for a new or renewal license.

4. A dog or cat harbored by a public shelter, humane society, or similar organization, whether public or private, the principal purpose of which is securing the adoption of dogs or cats, provided that such organization requires the spaying or neutering of all dogs and cats placed for adoption by such organization.

5. A dog that is a breed approved by and registered with a national or international breed registry or association which, at a minimum, requires identification of the breed, date of birth,

names of registered sire and dam, the name of the breeder and recordkeeping relating to breeding, transfer of ownership. The owner shall provide verified proof to the satisfaction of the Director with each application for a license.

6. A dog which is undergoing training to or currently is trained to compete or be used for herding of other animals, or as a livestock guardian dog, or a dog designated as breeding stock for these purposes by a recognized agency or organization approved by the Director. The owner shall provide proof to the satisfaction of the Director with each application for a new or renewal license.

C. Qualification for exemption. For purposes of the exemptions set forth in Subsections 6.16.085.A and 6.16.085.B, a dog or cat is:

1. Incapable of breeding if a licensed veterinarian has so certified in writing.

2. Medically unsuited to undergo a spay or neuter procedure if a licensed veterinarian has certified in writing, that a spay or neuter procedure would likely cause the animal's death or substantially aggravate a physical condition of the animal. The certification shall indicate the medical basis for the exemption and whether the unsuitability is temporary or permanent. If temporary, the certificate shall indicate the period of time the unsuitability is anticipated to last. For an exemption to apply beyond that period, a new certificate must be obtained.

D. Temporary exemption.

1. Unless otherwise extended by the City Council, the provisions of this Section shall not be applicable until October 1, 2015.

2. An unaltered dog or cat that has a valid license from the Animal Care Services Bureau shall not be subject to this Section until the license lapses, or October 1, 2015, whichever occurs last. (ORD-15-0008, § 1, 2015; ORD-09-0022, § 5, 2009)

6.16.090 Dogs prohibited on beaches or schoolgrounds.

A. Except as provided in Section 6.16.310 of this Chapter, no person responsible for a dog shall permit such dog to be upon any beach or public school ground within the City.

B. Notwithstanding the provisions of Subsection A. of this Section or Section 16.16.010 of this Chapter, no person responsible for any dog(s) and/or other animal(s) shall permit such animal(s) to be on a beach bike path, beach immediately adjacent to the bike path, and/or on other beach locations within the City unless:

1. The animal is authorized to be present pursuant to a special event permit issued by the City pursuant to Chapter 5.60 of this Code which permit contains terms and conditions governing indemnification, supervision, cleanup and control relating to the presence of dogs and/or other animals at such special events; and/or

2. The animal is deemed a guide dog, signal dog and/or service dog, as those terms are currently defined in California Penal Code Section 365.5 or may be amended in the future. (ORD-09-0022, § 5, 2009)

6.16.100 Dog leash required.

A. No person responsible for a dog shall permit such dog to do any of the following, unless the dog is upon a secure leash not more than six feet (6') long held continuously in the hands of a responsible person capable of controlling the dog, or unless the dog is securely confined within an automobile:

1. Be in or upon any public street, sidewalk, improvement, park or other public place, or private property if the private property is open or accessible to the public; or

2. Enter upon another person's property without permission.

B. This Section shall not apply to any such person who is in possession or operating within the terms of a valid, unrevoked permit from the City for the conduct of obedience or other types of trial or show of dogs in or upon any public place.

C. This Section shall not apply to person responsible for a dog in a fenced dog exercise area in a City park, or portion of a City park, approved and designated for that purpose by the City Council.

D. A person responsible for a dog shall comply with the following regulations and limitations applied to all dog exercise areas identified in Subsection C. of this Section:

1. Designated off-leash exercise areas will be open from 6:00 a.m. to 10:00 p.m.

2. As a condition of admission to such dog exercise areas, the person responsible for such dog(s) shall use a suitable container or instrument to remove dog feces and shall dispose of it in waste containers for that purpose.

3. Aggressive dogs are not permitted. Persons responsible for such dogs are legally responsible for any injury caused by their dog(s)

4. Any dog(s) which has been declared vicious under Section 6.16.250 of this Chapter, or any other state law or local ordinance, is not permitted. Persons responsible for such dogs are legally responsible for any injury caused by their dog(s).

5. All persons responsible for dogs must keep their dogs under visual and voice control at all times.

6. Dogs shall not be left unattended.

7. Dogs under four (4) months old are not permitted.

8. All dogs must have current vaccinations and licenses.

9. Female dogs in estrus (heat cycle) are not permitted.

10. Professional dog trainers may not use the dog exercise areas to conduct classes or individual instruction.

11. Professional dog handlers and walkers shall have a City business license.

12. Children shall be accompanied by an adult and shall not run, shout, scream, wave their arms, or otherwise excite or antagonize dogs.

13. Bicycles, rollerblades, roller skates, skateboards, strollers and the like, are not permitted. Wheelchairs and other aids for the disabled are permitted.

14. Spiked collars on dogs are not permitted.

15. A person responsible for a dog must have in his/her possession a leash for the dog which shall be worn by the dog at all times that the dog is not in the exercise areas.

16. A person responsible for a dog shall otherwise comply with all rules governing the parks and relevant parking regulations.

17. Use of the exercise areas by any person responsible for a dog shall constitute implied consent of that person to all regulations and shall constitute a waiver of liability to the City of Long Beach and an agreement to protect, defend, indemnify, and hold harmless the City of Long Beach, its officials and employees for any injury or damage caused by a dog when the dog is not on its leash.

18. No person shall play any team sport including, but not limited to, football, baseball, soccer, rugby and volleyball within the exercise area. The use of a frisbee is permitted.

E. A person responsible for a dog may be deemed to have violated Subsection A. of this Section, when the violation was not committed in the presence of the Director or Animal Care Services Bureau enforcement officer(s) or inspector(s) if three (3) or more persons have submitted, within a one (1) year period, declarations signed, under penalty of perjury, that the violation(s) was committed in their presence. (ORD-09-0022, § 5, 2009)

6.16.110 Dog noise—Prohibited.

No person responsible for a dog shall permit such dog to bark, howl, whine and/or make other loud and unusual noises, whether within a building or enclosure, tied, or otherwise confined, or while at large upon any public street, sidewalk, improvement, park or other public place, or private property, which disrupts the public peace or which causes discomfort or annoyance to any reasonable person of normal sensitiveness residing in the area. (ORD-09-0022, § 5, 2009)

6.16.120 Dog noise—Enforcement.

When the Director or his/her enforcement officer(s) and/or inspector(s) determine that a person responsible for a dog has violated Section 6.16.110 of this Code, such Animal Care Services Bureau personnel are authorized to:

A. Direct the person responsible for the dog to immediately terminate the actions of the dog that are causing the loud noise;

B. Issue a written notice to the person responsible that if, within a twelve (12) month period following the initial response. Animal Care Services Bureau personnel are again required to respond to the same person responsible for violating Section 6.16.110 of this Code, a criminal and/or administrative citation will be issued pursuant to Chapters 1.32 and 6.16 of this Code; and

C. Issue criminal and/or administrative citations to the person responsible for recurrent violations of Section 6.16.110 of this Code within a twelve (12) month period. (ORD-09-0022, § 5, 2009)

6.16.130 Food business—Keeping animals prohibited.

No person shall keep any dog or other animal in any bakery, restaurant, lunch stand, or other

place of business wherein food or foodstuffs are served or sold. (ORD-09-0022, § 5, 2009)

6.16.140 Food business—Permitting animal at large prohibited.

No person responsible for any dog or any other animal shall permit the same to run at large in any place where food or foodstuffs are served, displayed, and offered for sale or shall permit any dog or any other animal to come in contact with any food products intended for human consumption in any such place of business where food or foodstuffs are served, displayed or offered for sale. (ORD-09-0022, § 5, 2009)

6.16.150 Food business—Allowing animal on-premises prohibited.

No owner, operator, manager or employee of any place of business where food or foodstuffs are served, displayed or offered for sale shall permit any dog or any other animal on such premises or in such place of business. (ORD-09-0022, § 5, 2009)

6.16.160 Possession without owner's consent.

No person, without the consent of the person responsible for a dog, cat or other domestic animal, shall hold or retain in his or her possession such dog, cat or other animal legally owned as a domestic pet within the City for any period longer than twenty-four (24) hours unless such person reports the same, with the true description thereof, to the Director. (ORD-09-0022, § 5, 2009)

6.16.170 Dog and cat hospital—Location.

No person shall erect, construct, establish or maintain any dog hospital, cat hospital, or dog and cat hospital, outside of industrial districts, as defined by the zoning provisions of this Code, as the same now is or may hereafter be. (ORD-09-0022, § 5, 2009)

6.16.180 Dog and cat hospital—Defined.

The terms "dog hospital", "cat hospital" and "dog and cat hospital", as used in this Chapter, mean and include any place where dogs or cats, or both, are received and kept, or either, for the purpose of treating such animals for any disease or injury. (ORD-09-0022, § 5, 2009)

6.16.190 Restricted dog breeding and dog and cat transfer.

A. No person, as principal, agent, employee or otherwise, shall establish or maintain any dog kennel for breeding purposes, keep any dog for breeding purposes, or breed any dog which is owned, harbored or kept within the City, without first applying to and receiving a breeding permit to do so from the Department of Health and Human Services, Animal Control Division. "Breeding" shall be deemed to have occurred upon the production of a litter, whether such litter results from sexual activity or artificial insemination, and whether such sexual activity was intentional or the result of improper confinement.

B. The application for a breeding permit shall be filed by all of the persons responsible for both dogs to be bred, including persons who may reside outside of the City, and shall contain such information as is requested by the City, including without limitation the following:

1. A complete description of the nature and extent of the breeding to be conducted and for which application is made, including the breed of dogs proposed to be bred;

2. The address of the location at which breeding will occur and, if different from the breeding address, the address of the location at which the litter shall be whelped;

3. The name and address of the applicant(s);

4. A statement by the applicant(s) stating that each applicant(s) owns either of the dogs to be bred and that there are no other owners;

5. A statement by the applicant(s) stating that at least one (1) of the litter is intended to be offered for sale;

6. Evidence that the dogs to be bred do not have the same sire or dam;

7. Evidence that the dam to be bred is at least two (2) years old and not older than seven (7) years old;

8. A copy of a valid certificate of health for the dam;

9. Evidence that both dogs to be bred have electronic animal identification devices implanted;

10. Written authorization to breed and/or whelp from the owner(s) of the properties at which the dogs will be bred and/or whelped, if such owners are not the applicant(s);

11. A statement by the applicant(s) stating that the applicant(s) have reviewed and will comply with all applicable rules and regulations regarding breeding and keeping animals on private property;

12. Such other information as may be required by the Director, consistent with the purposes of this Chapter, this Code and applicable law.

C. The Chief of Police and/or Director shall conduct a background check of any applicant(s) for a breeding permit. The City shall not issue a breeding permit to any applicant for whom the Chief of Police or Director determines the background to be unacceptable. Breeding permits shall not be issued to applicant(s) who are under the age of eighteen (18), or who have violated this Section, Sections 6.16.080, 6.16.110, and/or 21.51.210 of this Code, or any of Sections 596 through 599 of the California Penal Code, or to persons responsible for dogs which have been declared vicious under Section 6.16.250 of this Chapter or otherwise have previously bitten any person, or to persons responsible for any breed of dog which is disproportionately responsible for dog bite complaints within the City, or to persons responsible for any breed of dog which is disproportionately euthanized within the City. Breeding permits shall not be issued for the purposes of breeding any dog breeds that are not recognized by the American Kennel Club (or any other organization determined by the Director to be a generally recognized leading national breeding organization) and shall not be issued for the purpose of mixing breeds.

D. Prior to processing the application, the Director shall receive the required breeding permit application fee, and such application fee shall be nonrefundable. The breeding permit application fee shall be determined by the City Council by resolution. After processing the application but prior to issuing a breeding permit, the Director shall receive the required breeding permit fee, and such permit fee shall be nonrefundable. The breeding permit fee shall be determined by the City Council by resolution. The following dogs are exempt from both the application fee and breeding permit fee requirements but are subject to the other requirements of this Section to the extent such requirements do not conflict with State or federal law:

1. Dogs documented as having been appropriately trained and actively used by law enforcement agencies for law enforcement or rescue activities, the offspring of which are to be used for the same purposes.

2. Dogs documented as guide, signal or service dogs pursuant to the California Penal Code or the California Business and Professions Code, the offspring of which are to be used for the same purposes.

E. The breeding permit shall be valid for one (1) year and shall not be transferable or assignable from one (1) person or entity to another or from one (1) household to another household, and only one (1) breeding permit shall be issued per year, per household, regardless of how many dogs or persons may reside in such household.

F. Once permitted by the City, the breeding permittee shall comply with each of the following operating restrictions:

1. Only one (1) litter per year, per dog per household may be whelped.

2. Proper shelter shall be provided for all dogs and litters. "Proper shelter" shall be defined as an enclosure with four (4) walls, a roof and a raised floor which adequately protects from exposure to cold, heat and water, and which gives access to an enclosed yard or other open outdoor space.

3. Clean and reasonably temperate water shall be provided to all dogs at all times.

4. Nutritious food sufficient to properly nourish the dame and her litter shall be provided.

5. Dogs' living quarters and yards shall be properly maintained at all times, including without limitation, removal of feces and urine to prevent odors from entering surrounding areas.

6. Dogs shall be kept in a manner which prevents barking from disturbing occupants or users of surrounding areas.

7. Births shall be reported to the Director within ten (10) days of their occurrence.

8. No offspring shall be sold or otherwise transferred, whether for compensation or otherwise, until it has reached the age of eight (8) weeks, has been immunized against common diseases and has been issued a certificate of health.

9. All offspring must have an electronic animal identification device implanted before the age of eight (8) weeks.

G. No person shall sell or transfer, for compensation or otherwise, any dog or cat within the City, without first applying to and receiving a transfer permit to do so from the Department of Health and Human Services, Animal Care Services Bureau. Persons responsible for a dog who have received a breeding permit under this Section shall not be required to apply for a transfer permit under this Section. One (1) transfer permit shall be issued per litter, unless the applicant for a transfer permit operates a pet store or is a validly incorporated Section 501(c)(3) animal rescue organization, in which case the transfer permit shall be issued annually.

H. The application for a transfer permit shall be filed by all of the persons responsible for the dogs or cats to be transferred, and shall contain such information as is requested by the City, including without limitation the following:

1. The name and address of the breeder(s) of the dogs or cats to be transferred or offered for transfer, or if unknown, evidence that the applicant is a validly incorporated Section 501(c)(3) animal rescue organization;

2. The address of the location at which the dog or cat litter was whelped, or if unknown, evidence that the applicant is a validly incorporated Section 501(c)(3) animal rescue organization;

3. Such other information as may be required by the Director consistent with the purposes of this Chapter, this Code and applicable law.

I. Prior to processing the application, the Director shall receive the required transfer permit application fee, and such application fee shall be nonrefundable. The transfer permit application fee shall be determined by the City Council by resolution. After processing the application but prior to issuing a transfer permit, the Director shall receive the required transfer permit fee, and such permit fee shall be nonrefundable. The transfer permit fee shall be determined by the City Council by resolution. The following dogs and/or applicant(s) are exempt from both the application fee and transfer permit fee requirements but are subject to the other requirements of this Section to the extent such requirements do not conflict with State or federal law:

1. Dogs documented as having been appropriately trained and actively used by law enforcement agencies for law enforcement or rescue activities, the offspring of which are to be used for the same purposes;

2. Dogs documented as guide, signal or service dogs pursuant to the California Penal Code or the California Business and Professions Code;

3. Validly incorporated Section 501(c)(3) animal rescue organizations.

J. The following provisions shall apply to the sale, adoption or other transfer of dogs and cats, whether or not a transfer permit is required under this Section:

1. Any person who offers or provides any dog or cat for sale or transfer, whether for compensation or otherwise, shall disclose to the transferee in writing, information regarding the dog's or cat's immunization history and the license and permit requirements of the City applicable to the transferred animal.

2. No person shall sell or otherwise transfer any dog without such dog having an electronic animal identification device implanted, which such device shall identify the breeding permit number under which the dog was bred or the transfer

permit number, as applicable, and a description of the transferred dog including the breed, gender, color and age.

3. No person shall see or otherwise transfer any dog or cat without reporting the name, address and phone number of the transferee to the Director within ten (10) business days of the transfer.

4. Any advertisement to the public regarding the availability of any dog which was bred within the City for sale or transfer, whether for compensation or otherwise, shall prominently display the breeding permit number.

5. Any advertisement to the public regarding the availability of any dog or cat for sale or transfer, which was bred outside the City, whether for compensation or otherwise, shall prominently display the transfer permit number.

6. No person shall give away any dog or cat as a prize or as an inducement to enter into any contest, lottery, drawing, auction, game or competition.

7. No person shall give away any dog or cat as an inducement to enter a place of business, or to enter into a business arrangement.

8. No person shall sell, barter, exchange or offer for adoption, whether for compensation or otherwise, any dog or cat to any minor under the age of eighteen (18).

9. Proper shelter shall be provided for all dogs and cats to be transferred.

10. Clean and reasonably temperate water shall be provided to all dogs and cats at all times.

11. Nutritious food sufficient to properly nourish the dog or cat shall be provided.

12. Dogs' and cats' living quarters and yards shall be properly maintained at all times, including without limitation, removal of feces and urine to prevent odors from entering surrounding areas.

13. Dogs shall be kept in a manner which prevents barking from disturbing occupants or users of surrounding areas.

14. A valid business license shall be required for all transfers made for compensation.

K. Employees of the Animal Care Services Bureau shall have the right to inspect, on more than one (1) occasion, the property of any permittee used for breeding, whelping or holding any animals during reasonable hours and without advance notice.

L. Failure of any person to comply with all terms and conditions of the breeding permit or the transfer permit and applicable law shall be grounds for the revocation or suspension of such breeding permit or transfer permit and shall be grounds for denial of future breeding and/or transfer permits.

M. Possession of a valid breeding or transfer permit under this Chapter does not entitle the permittee to engage in an activity which is otherwise prohibited by law. (ORD-09-0022, § 5, 2009)

6.16.200 Defecation—Removal required.

A. No person responsible for any animal shall permit such animal to defecate on any public sidewalk, street, improvement, park or other public place, or on any private property without the consent of the owner of such private property, unless such person responsible for the animal removes any such defecation to a proper trash receptacle.

B. When the Director or his/her enforcement officer(s) and/or inspector(s) determine that a person responsible for a dog has violated Subsection A. of this Section 6.16.200, such Animal Care Services Bureau personnel are authorized to:

1. Direct the person responsible for the animal to immediately remove and dispose of the defecation to a proper trash receptacle;

2. Issue a written notice to the person responsible that if, within a twelve (12) month period following the initial response. Animal Care Services Bureau personnel are again required to respond to the same person responsible for violating Subsection A. of this Section 6.16.200, a criminal and/or administrative citation will be issued pursuant to Chapters 1.32 and 6.16 of this Code; and

3. Issue criminal and/or administrative citations to the person responsible for recurrent violations of Subsection A. of this Section 6.16.200 within a twelve (12) month period. (ORD-09-0022, § 5, 2009)

6.16.210 Enforcement.

A. The Director along with Animal Care Services Bureau enforcement officers and inspectors shall have the duty to enforce the sections included in this Chapter, and all other chapters included in Title 6, and are authorized, pursuant to the California Penal Code, Section 836.5, to arrest persons and to prepare, issue and deliver to any such arrested person written notice to appear in court for any violation or violations of any section or sections in Title 6 of this Code. Additionally, those employees of the City holding the classified positions of park district supervisor and park crew supervisor employed by the Department of Parks and Recreation and those employees holding the classified position of security officer employed in the Department of Parks and Recreation shall have the duty to enforce Sections 6.16.100 and 6.16.200 and are authorized, pursuant to California Penal Code, Section 836.5, to arrest persons and to prepare, issue and deliver to any such arrested person written notice to appear in court and to release such person from custody upon receiving from such person their written promise to appear in court for any violation or violations of Sections 6.16.100 or 6.16.200.

B. Notwithstanding the provisions of Subsection 6.16.210.A of this Section, those employees holding the position of fire captain, marina agent, marine safety officer, marine safety sergeant, marine safety battalion chief, and security officer, shall have the duty to enforce Sections 6.16.090, 6.16.100, 6.16.110, 6.16.200 and 6.16.310, and are authorized, pursuant to California Penal Code, Section 836.5, to arrest persons and to prepare, issue and deliver to any such person arrested written notice to appear in court and to release such person from custody upon receiving from such person their written promise to appear in court for any violation or violations of Sections 6.16.090, 6.16.100, 6.16.110, 6.16.200 and 6.16.310.

C. Nothing in this Section is intended to operate either in addition to or in contravention of Title 3, Chapter 4.5, of the Penal Code which expressly designates those persons who are classified as peace officers.

D. Further, nothing in this Section is intended to or shall operate to change or shall have the effect of changing the status of the officers and employees authorized to act pursuant to this Section from public or miscellaneous officers and employees to individual peace officers or safety members or classes of peace officers or safety members for purposes of retirement, workers' compensation or similar injury or death benefits or any other employee benefit or benefits to which said officer or employee would not have been entitled as a public or miscellaneous officer or employee prior to the adoption of this Section.

E. Any person who violates any provision of Title 6 of the Long Beach Municipal Code may also be issued an administrative citation by the Director or Animal Care Services Bureau enforcement officers or inspectors, in addition to any criminal penalties that may be assessed under Title 6 and Chapter 1.32 of this Code.

F. Each and every day a violation exists constitutes a separate and distinct offense.

G. Civil fines shall be assessed by means of administrative citations and shall be payable directly to the City of Long Beach Animal Care Services Bureau.

H. Administrative fines for violations of Chapters 6.04 Animal Shelter, 6.08 Dog Licensing, 6.12 Rabies Control, 6.20 Fowl, Rabbits and Goats, 6.28 Police Animals and/or 6.16 Animal Regulation shall be assessed as follows:

1. A fine for each initial violation, in an amount established by the City Council by resolution;

2. A fine for each instance of a second violation of the same Code section within one (1) year from the date of the first violation, in an amount established by the City Council by resolution; and

3. A fine for each additional violation of the same Code section within one (1) year from the date of the first violation, in an amount established by the City Council by resolution. (ORD-24-0020 § 1, 2024; ORD-09-0022, § 5, 2009)

6.16.220 Animal sale refunds.

In the event the Director determines after the sale of an animal by the Animal Care Services

Bureau that the animal bites or destroys property, or that an examining veterinarian has determined that the animal is ill and there are sufficient facts and circumstances which indicate that the illness was incurred by the animal prior to the sale, the Director may authorize the refund of the purchase price, inoculation fee, licensee fee, and any other fees or charges paid by the purchaser to the Animal Care Services Bureau in connection with the sale of the animal; provided, that the purchaser of the animal files a written request for the refund with the Animal Care Services Bureau within fifteen (15) days after the date of the sale of the animal. (ORD-09-0022, § 5, 2009)

6.16.230 Manure removal required.

A. Manure must be removed from private stables at least once in seven (7) days. During the time manure from private stables is allowed to remain on the premises the same must be kept covered with close screen wire to prevent the breeding of flies therein. When the amount of manure from any private stable equals one (1) cubic yard it shall not be allowed to remain longer than one (1) day.

B. Stables or yards where more than four (4) horses or mules are kept shall be cleaned and refuse removed daily. (ORD-09-0022, § 5, 2009)

6.16.240 Dead animal disposal.

The carcass of any dead horse, cow, mule or donkey not slaughtered for human food shall be removed and disposed of by the owner of the carcass. (ORD-09-0022, § 5, 2009)

6.16.250 Vicious animals—Defined.

A. "Vicious animal" is any animal which bites or attempts to bite any human or animal without provocation, or which has a disposition or propensity to attack, bite or menace any human or animal without provocation and endangers the health and safety of any person.

B. Any animal while on the premises of the person responsible for that animal which bites or attempts to bite a person or other animal that is unlawfully on such premises, or which has been provoked or teased, or which is otherwise performing its duties as a police dog, shall not be deemed to be a vicious animal. (ORD-09-0022, § 5, 2009)

6.16.260 Impoundment of vicious animal.

A. Any law enforcement officer or Animal Care Services Bureau enforcement officer or inspector of the City shall have the authority summarily and immediately to impound a dog or other animal where there is evidence it is vicious within the meaning of this Chapter.

B. Whenever necessary to make an inspection to enforce any of the provisions of this Chapter, such official may enter private property at all reasonable times to inspect same or to perform any duty imposed by this Chapter; provided, that if such private property is occupied, such official shall first present proper credentials and demand entry. If entry is refused, or if the owner or other person having control of such property is not present to permit entry, such official shall have recourse to every remedy provided by law to secure entry at a later time.

C. Any person responsible for such dog or other animal subject to being impounded who fails to surrender the animal to such official upon demand shall be guilty of a misdemeanor and/or be subject to administrative fines and penalties set forth in Section 6.16.210.

D. If the dog or other animal cannot be safely taken up and impounded, it may be destroyed forthwith by such law enforcement officer or Animal Care Services Bureau enforcement officer or inspector. (ORD-09-0022, § 5, 2009)

6.16.270 Vicious animal hearing.

A. "Hearing Officer" means an individual who has been designated by the City Manager to adjudicate vicious animal determination hearings.

B. Where there exists evidence sufficient to give rise to the suspicion that a dog or other animal falls within the provisions of Subsection 6.16.250.A., the Director shall cause a public hearing to be conducted for the purpose of determining whether the dog or other animal is a vicious animal. The Director shall notify the person re-

sponsible for the animal of the time and place for the hearing during which he/she may present evidence as to why the animal should not be declared vicious. Each party shall be given the opportunity to present any evidence relevant to the issue. The Hearing Officer may find, by a preponderance of evidence, such dog or other animal to be a vicious animal, and may impose additional orders authorized by Section 6.16.290 of this Chapter.

C. The hearing shall be conducted not less than five (5), nor more than ten (10) business days after notice was served or deemed to have been served upon the person responsible for the animal.

D. Any person responsible for a dog or other animal determined to be vicious shall be guilty of a misdemeanor and/or be subject to administrative fines and penalties set forth in Section 6.16.210. (ORD-09-0022, § 5, 2009)

6.16.280 Disposition of vicious animals.

Any dog or other animal declared to be a vicious animal may, at the discretion of the Director, be humanely destroyed. Such humane destruction shall occur no earlier than ten (10) days following written notice given to the person responsible for such animal of the intention to destroy. (ORD-09-0022, § 5, 2009)

6.16.290 Issuance of rules and regulations—Summary destruction.

A. The Director, if he or she elects not to destroy a vicious animal, may issue certain rules and regulations pertaining to the keeping and containing of such animal.

B. If the person responsible for such vicious dog or other animal is thereafter determined to be in violation of any rule or regulation as made pursuant to Subsection A. of this Section, such animal shall be impounded and thereafter subject to summary destruction no earlier than ten (10) days following written notice given to the person responsible for the animal of the intention to destroy.

C. Any person responsible for a vicious dog or other animal who violates and/or knowingly permits such animal to violate any rule and/or regulation set forth pursuant to Subsection A. of this Section shall be deemed guilty of a misdemeanor and/or be assessed administrative fines and penalties pursuant to Section 6.16.210 of this Code. (ORD-09-0022, § 5, 2009)

6.16.300 Liability for charges.

The person responsible for a dog or other animal impounded pursuant to this Chapter shall be liable for any and all of the prevailing board and keep charges incurred by the City's Animal Care Services Bureau. (ORD-09-0022, § 5, 2009)

6.16.310 Dog exercise area on the beach.

Notwithstanding any other ordinance or rules of the City of Long Beach, dogs may be permitted, during the below-mentioned times of day, on that part of the beach of the City of Long Beach bounded between Granada Avenue (the eastern boundary) and Roycroft Avenue (the western boundary) from the water line to the designated boundary markers located approximately sixty (60) yards from the water line (the northern boundary) to be designated by appropriate posting by the Department of Parks, Recreation and Marine. Dogs are permitted on this designated part of the beach for the purpose of exercise. The hours that dogs may be so on the beach shall be set at the discretion of the Director of the Department of Parks, Recreation and Marine. Permission for dogs to be on this designated area of the beaches of the City of Long Beach may be revoked at any time by the Director of the Department of Parks, Recreation and Marine by appropriate posting at the designated area mentioned above. With regard to said use of this designated part of the beach of the City of Long Beach:

A. The dog exercise area must be accessed from the adjacent parking lot in a ninety degree (90°) angle to the marked boundaries of the dog exercise area.

B. Each dog must be under the control of an adult person responsible for the dog, and only one (1) dog per adult is permitted. The dog must be under visual and voice control by the person responsible at all times. Dogs that do not respond to voice commands are not permitted.

C. All dogs must wear a collar with current tags.

D. All dogs must have current vaccinations and licenses.

E. As a condition of admission to such dog exercise area, the person responsible for such dog shall use a suitable container or instrument to remove dog feces and shall dispose of it in waste containers provided for that purpose.

F. Dogs previously declared vicious pursuant to this Chapter, and/or any other State law or local ordinance, and aggressive dogs are not permitted. The persons responsible for such dogs are legally responsible for any injury caused by their dog(s).

G. Dogs shall not be left unattended.

H. Dogs under four (4) months old are not permitted.

I. Female dogs in estrus (heat cycle) are not permitted.

J. Professional dog trainers may not use the dog exercise area to conduct classes or individual instruction.

K. Children shall be accompanied by an adult and shall not run, shout, scream, wave their arms, or otherwise excite or antagonize dogs.

L. Bicycles, rollerblades, roller skates, skateboards, strollers and the like, are not permitted. Wheelchairs and other aids for the disabled are permitted.

M. Spiked collars on dogs are not permitted.

N. The person responsible for a dog must have in his/her possession a leash for the dog which shall be worn by the dog at all times that the dog is ingressing/egressing the dog exercise area.

O. The person responsible for a dog shall provide drinking water for their dog.

P. No food of any kind is permitted in the dog exercise area during the designated hours.

Q. The person responsible for a dog shall otherwise comply with all rules governing the beaches and relevant parking regulations.

R. No one shall play any team sport including, but not limited to, football, baseball, soccer, rugby and volleyball during the designated dog exercise hours. The use of a frisbee or a small, retrievable ball is permitted.

S. Use of the dog exercise area by the dog shall constitute implied consent of the person responsible for the dog to all regulations and shall constitute a waiver of liability to the City of Long Beach and an agreement to protect, defend, indemnify, and hold harmless the City of Long Beach, its officials and employees for any injury or damage caused by a dog when the dog is not on a leash.

T. The Director of the Department of Parks, Recreation and Marine shall have the discretion to terminate the program. (ORD-15-0009, § 1, 2015; ORD-09-0022, § 5, 2009)

6.16.320 Administrative citation—Service procedures.

An administrative citation subject to this Chapter shall be issued on a form approved by the Director, and may be served by the Director or an Animal Care Services Bureau enforcement officer or inspector in the following manner:

A. Personal service. In any case where an administrative citation is issued:

1. The Director or Animal Care Services Bureau enforcement officer or inspector shall attempt to locate the person responsible and personally serve the administrative citation;

2. If the person responsible refuses or fails to sign the administrative citation, the failure or refusal to sign shall not affect the validity of the administrative citation or any subsequent proceedings.

B. Service of citation by posting notice. If the Director or Animal Care Services Bureau enforcement officer or inspector do not succeed in personally serving the person responsible:

1. The Director or Animal Care Services Bureau enforcement officer or inspector shall post the administrative citation or duplicate thereof in a conspicuous place on the lot last reported by the person responsible as his/her residence in the City of Long Beach, and such posting shall be deemed effective service; and

2. Any posted notice shall be photographed on the date of posting by the Director or Animal

Care Services Bureau enforcement officer or inspector, and a proof of service of the notice shall be made by declaration of the Director or enforcement officer or inspector effecting the service.

C. Service of citation by mail. If the Director or Animal Care Services Bureau Enforcement officer or inspector do not succeed in personally serving a person responsible, in addition to posting notice when the last reported residence of that person lies within the City of Long Beach:

1. The administrative citation or duplicate thereof shall be mailed to the residence or place of business of the person by depositing the same in the United States Mail, postage prepaid as first class mail; and

2. A proof of service of the notice shall be made by declaration of the Director or enforcement officer or inspector effecting the service. (ORD-09-0022, § 5, 2009)

6.16.330 Administrative citation—Contents of notice.

Each administrative citation shall contain the following information:

A. The date of service of the citation and the date, time, address or description of the location where the violation(s) occurred in the City of Long Beach.

B. The Long Beach Municipal Code section(s) violated, a description of the violation(s), and where appropriate a description of conditions violated.

C. The amount of the administrative fine(s) for each violation.

D. An explanation of how the fine(s) shall be paid and the payment due date.

E. Notice of the right to appeal the citation, the time within which the citation may be appealed and the place to obtain a request for hearing form to appeal the administrative citation.

F. The name and signature of the Director or Animal Care Services Bureau enforcement officer or inspector and, if obtained, the signature of the person responsible. (ORD-09-0022, § 5, 2009)

6.16.340 Administrative citation satisfaction.

Upon service of an administrative citation, the cited party shall pay the fine no later than thirty (30) calendar days from the date of issuance as specified on the administrative citation. Payment of a fine shall not bar further enforcement action by the City. Late charges shall be imposed for fine payments made after the fine payment due date. The late charge shall be calculated at a rate of twenty-five percent (25%) of the fine, and will be imposed in addition to any outstanding fine. (ORD-09-0022, § 5, 2009)

6.16.350 Administrative citation—Appeal.

A. Any cited party may appeal an administrative citation by completing a written request for hearing form, obtained as directed on the citation, and returning it to the Animal Care Services Bureau within thirty (30) calendar days from the date the citation was served or was deemed to have been served, together with a deposit in the total amount of the fine.

B. Failure to timely file a written request to appeal the administrative citation shall be deemed a waiver of rights to appeal and to seek judicial review. (ORD-09-0022, § 5, 2009)

6.16.360 Administrative citation—Hardship waiver.

A. Any cited party who intends to appeal the administrative citation and who is financially unable to make the advance deposit as required in Subsection A. of Section 6.16.350, may request an advance deposit hardship waiver by completing a written request for deposit waiver form obtained as directed on the citation.

B. The deposit waiver request shall be filed together with the appeal within thirty (30) calendar days from the date the administrative citation was served or deemed to have been served.

C. The deposit requirement as described in Subsection A. of Section 6.16.350 shall be stayed unless or until the Director makes a determination regarding the waiver request.

D. The Director may waive the requirement of an advance deposit only if the cited party sub-

mits to the Director a written statement made under penalty of perjury, together with supporting documents, demonstrating to the satisfaction of the Director the cited party's actual financial inability to deposit with the City the full amount of the fine in advance of the hearing.

E. If the Director declines to issue a waiver, the cited party shall remit the full deposit to the City as indicated on the citation within ten (10) calendar days of the date of that decision, or thirty (30) calendar days from the date the administrative citation was served or was deemed to have been served, whichever is later.

F. The Director shall issue a written determination listing the reasons for his/her determination to issue or not issue the hardship waiver. The written determination of the Director shall be final.

G. The written determination of the Director shall be served personally or by first class mail, postage prepaid, upon the cited party who applied for the hardship waiver. (ORD-09-0022, § 5, 2009)

6.16.370 Administrative citation—Appeal hearing procedure.

A. No hearing to appeal an administrative citation shall be held unless and until a timely request for hearing form has been completed and submitted, as indicated on the citation, and the deposit has been paid, or a hardship waiver has been issued.

B. An appeal hearing shall be set for a date not sooner than twenty-one (21) calendar days and not more than sixty (60) calendar days from the date the request for hearing is completed and submitted in accordance with the provisions of this Chapter. The cited party requesting the hearing shall be notified in writing of the time and place set for the hearing at least fifteen (15) calendar days prior to the date of the hearing.

C. The Hearing Officer shall only consider evidence that is relevant to whether the violation(s) occurred and whether the cited party is the person responsible for creating, committing, maintaining or allowing the violation(s) to occur. Courtroom rules of evidence shall not apply. Relevant hearsay evidence and written reports may be admitted whether or not the speaker or author is present to testify, if the Hearing Officer determines that such evidence is reliable. Admission of evidence and the conduct of the hearing shall be controlled by the Hearing Officer in accordance with the fundamentals of due process. The Hearing Officer may set reasonable limits on the length of the hearing, and shall allow the appellant at least as much time to present his/her case as is allowed to the City.

D. The cited party contesting the administrative citation shall be given the opportunity to testify and present witnesses and evidence concerning the administrative citation. The City's case shall be presented by any person designated by the Director. The appellant and City may be represented by counsel at their own expense.

E. The failure of the appellant to appear at the hearing shall constitute a forfeiture of the deposit and failure to exhaust administrative remedies.

F. The administrative citation and any additional documents prepared by the City in connection with the violation(s) may be submitted and shall constitute prima facie evidence of the respective facts contained in those documents.

G. If the City submits any additional documents concerning the administrative citation to the Hearing Officer for consideration at the hearing, then, whenever possible, a copy of such document(s) shall be served by mail on the appellant at least five (5) calendar days prior to the date of the hearing.

H. The Hearing Officer may continue the hearing or request additional information from the City or the appellant prior to issuing a written decision. (ORD-09-0022, § 5, 2009)

6.16.380 Administrative citation—Hearing Officer decision.

A. After considering all of the testimony and evidence submitted at the hearing, the Hearing Officer shall issue a written decision within fifteen (15) business days of the hearing. The decision of the Hearing Officer shall be final.

B. If the Hearing Officer denies the appeal, then the deposit shall be retained by the City.

C. If the Hearing Officer grants the appeal, then the City shall refund the deposit within thirty (30) business days from the date of the written decision.

D. The appellant and City shall each be served with a copy of the Hearing Officer's written decision. (ORD-09-0022, § 5, 2009)

6.16.390 Administrative citation—Failure to pay fines.

A. The failure of the cited party to pay a civil fine or late penalty in a timely manner may result in the imposition of a special assessment and/or lien, and/or filing of an action with the small claims court for recovery of the fine and late penalty. The only issue to be adjudicated by the small claims court shall be whether or not the fines and possible late fees were paid. A cited party may only obtain judicial review of the validity of the citation by first requesting and participating in an administrative hearing before a Hearing Officer. In the small claims court action, the City may also recover its costs, according to proof.

B. The City may also refuse to issue, extend or renew to any cited party who has unpaid delinquent fines, interest, penalties, liens or assessments, any City permit, license, entitlement or other City approval pertaining to the subject of the fine and administrative citation. (ORD-09-0022, § 5, 2009)

6.16.400 Administrative citation—Dismissal.

The Director may dismiss an administrative citation at any time if it is determined to have been issued in error, in which event any deposit will be refunded to the cited party. (ORD-09-0022, § 5, 2009)

6.16.410 Administrative citation—Judicial review.

Either the City or the cited party aggrieved by a decision of a Hearing Officer on appeal of an administrative citation issued pursuant to this Chapter, may obtain review of the decision by filing a petition for review with the Los Angeles Superior Court in accordance with the time lines and provisions as set forth in California Government Code Section 53069.4. Judicial review of an administrative citation shall not be available unless all administrative remedies have been exhausted. (ORD-09-0022, § 5, 2009)

CHAPTER 6.20 FOWL, RABBITS AND GOATS*

6.20.010 Definitions.

The following words, as used in this Chapter, shall have the signification attached to them in this Section, unless otherwise clearly apparent from the context:

A. "Coop" means and includes any pen, coop or enclosure wherein live fowl are kept and maintained.

B. "Crowing fowl" means and includes any male fowl capable of making a sound peculiar to its species or type.

C. "Dwelling" means and includes any place of human habitation.

D. "Fowl" means and includes male and female chicken, duck, goose, seafowl, peacock, turkey and pheasant. (ORD-15-0017, § 2, 2015)

6.20.020 Fowl—Number restricted.

No person shall keep or maintain more than a total of twenty (20) live fowl or any combination of such animals on any lot or parcel of land within the City. (ORD-15-0017, § 2, 2015)

6.20.030 Fowl—Distance from dwelling.

A. Except as provided in Subsection 6.20.030.B and subject to Section 6.20.140 for the keeping of live chickens, no person shall keep or maintain any live fowl within the City less than fifty feet (50') from any other person's single-family or two-family dwelling or less than one

***Editor's note**—ORD-15-0017, § 2, adopted July 14, 2015, amended Ch. 6.20 in its entirety to read as herein set out. Former Ch. 6.20, §§ 6.20.010—6.20.170, pertained to similar subject matter, and derived from: Prior code §§ 5620—5620.17, Ord. C-5755 §§ 1, 2, 1981; and Ord. C-7781, § 1, 2001.

hundred feet (100') from any hotel or dwelling occupied by, or designed for the occupancy of three (3) or more families.

B. One (1) live fowl may be kept or maintained as a pet on any lot or parcel of land within the City, provided that the pen, coop or other such enclosure for any such pet fowl shall be no less than twenty feet (20') from any other person's structure designed or used as a dwelling. (ORD-15-0017, § 2, 2015)

6.20.040 Crowing fowl prohibited.

No person shall keep or maintain or cause to be kept or maintained any crowing fowl. (ORD-15-0017, § 2, 2015)

6.20.050 Fowl—Dealers exempt.

Nothing contained in this Chapter shall be deemed to prohibit the keeping of fowl by regularly licensed dealers for the purpose of sale at their respective places of business. Such animals shall be kept and maintained in a clean and sanitary condition and such dealers shall conform to and abide by the rules and regulations of the Health Department with reference to the keeping of such animals on the premises of such dealers. (ORD-15-0017, § 2, 2015)

6.20.060 Fowl—Enclosure sanitation.

Wherever live fowl are permitted to be kept or maintained in the City, no person, so keeping or maintaining such fowl, shall fail at any time to keep the coops, pens or yards wherein such fowl are enclosed in a clean and sanitary condition nor shall fail to remove the manure or other debris from such enclosures daily. No person shall fail to conform to and abide by the rules and regulations of the Health Department with reference to the keeping of such fowl in such enclosures. (ORD-15-0017, § 2, 2015)

6.20.070 Fowl—Running at large and keeping in front yard prohibited.

A. No person shall allow any fowl owned or controlled by such person to run at large.

B. No person shall allow any fowl, enclosure or related structure owned or controlled by such person to be placed or kept in the front yard of the property. (ORD-15-0017, § 2, 2015)

6.20.080 Fowl—Impoundment—Food and water.

No person shall impound any live fowl unless provision is made by such person for the proper feeding and the furnishing of water to such fowl at intervals not longer than twelve (12) hours apart. (ORD-15-0017, § 2, 2015)

6.20.090 Fowl—Impoundment—Coop size.

No person shall impound any live fowl in a coop which is less than twice as large in floor space or standing room as the total size of all live fowl which may be impounded therein, and which is not sufficiently high as to permit each fowl impounded therein to stand in a natural erect position. (ORD-15-0017, § 2, 2015)

6.20.100 Fowl—Wing locking prohibited.

No person handling live fowl shall lock the wings of such fowl. (ORD-15-0017, § 2, 2015)

6.20.110 Fowl and rabbits—Artificial coloring prohibited.

A. No person, by means of any application to or upon the exterior portion thereof or in any other manner, shall dye, artificially color or alter or otherwise change the natural color of any live rabbit or fowl.

B. No person shall sell, offer or display for sale, barter or give to any person any live rabbit or live fowl, the natural color of which animal has been changed by dyeing, coloring, or any other artificial manner.

C. No person shall sell, offer for sale, barter or give away any chick, duckling, or other fowl under four (4) weeks of age, or rabbit under two (2) months of age, as pets, toys, premiums or novelties.

D. This Section shall not be construed to prohibit the display or sale of rabbits, chicks, ducklings or other fowl in proper facilities by dealers,

hatcheries or stores engaged in the business of selling the same to be raised for food purposes. (ORD-15-0017, § 2, 2015)

6.20.120 Chickens—Permit required.

A. No person shall have, keep, maintain, or have in possession or under control, on residential property within the City, five (5) or more live chickens without first applying to and receiving from the Animal Care Services Bureau a permit to do so. Permits issued under this Section shall be subject to a pre-inspection requirement.

B. The Director is invested with the authority to issue permits for the keeping or maintaining of live chickens to any person when, in the opinion of the Director, such chickens may be kept or maintained without menacing the safety of any person or property; provided, however, that the Director may issue additional rules and regulations regulating the keeping or maintaining of such chickens, and may deny, suspend, revoke or deny renewal thereof, any such permit for the violation of this Chapter, or any other provisions of the Long Beach Municipal Code, or any of the rules and regulations issued by the Director, or when, in his or her opinion, the safety of any person or property is menaced by the keeping of any such chickens.

C. All permits issued under this Section shall be for a period not to exceed one (1) year in duration. The Director shall automatically renew such permits every year if the Director determines that the permit holder complied with the provisions of this Chapter and applicable laws during the preceding permit term, and if the permit holder pays the annual fee as prescribed by City Council resolution. (ORD-15-0017, § 2, 2015)

6.20.130 Chickens—Enclosure and shelter.

A. Adequate enclosure or fencing must be provided to contain live chickens on the property to prevent escape. The enclosure must be a minimum size of ten (10) square feet of permeable land per chicken.

B. Adequate shelter must be provided to protect the chickens from the elements, and to prevent wildlife or other predators from gaining entry. (ORD-15-0017, § 2, 2015)

6.20.140 Chickens—Distance from dwelling.

Live chickens may be kept or maintained on residential property within the City, provided that the chickens must be kept at least a minimum distance away from any other person's dwelling, as follows:

Number of Chickens	Minimum Distance From Any Adjacent Dwelling
1 - 4	10 feet
5 - 10	35 feet
11 - 20	50 feet

(ORD-15-0017, § 2, 2015)

6.20.150 Goats—Permit and microchip required.

A. No person shall have, keep, maintain, or have in possession or under control, on residential property within the City, any live goat without first applying to and receiving from the Animal Care Services Bureau a permit to do so.

B. The Director is invested with the authority to issue permits subject to an identifiable microchip requirement for the keeping or maintaining of live goats to any person when, in the opinion of the Director, such goats may be kept or maintained without menacing the safety of any person or property; provided, however, that the Director may issue additional rules and regulations regulating the keeping or maintaining of such goats, and may deny, suspend, revoke or deny renewal thereof, any such permit for the violation of this Chapter, or any other provisions of the Long Beach Municipal Code, or any of the rules and regulations issued by the Director, or when, in his or her opinion, the safety of any person or property is menaced by the keeping of any such goats.

C. All permits issued under this Section shall be for a period not to exceed one (1) year in duration. The Director shall automatically renew such permits every year if the Director determines that the permit holder complied with the provisions of this Chapter and applicable laws during

the preceding permit term, and if the permit holder pays the annual fee as prescribed by City Council resolution. (ORD-15-0017, § 2, 2015)

6.20.160 Goats—Personal consumption only.

Food produced by live goats shall be for personal consumption only by members of permittee's household, and shall not be sold, donated or otherwise distributed to any other person. (ORD-15-0017, § 2, 2015)

6.20.170 Goats—Number.

Exactly (no more and no less than) two (2) live goats may be kept on residential property within the City, except that offspring may be kept on the property for up to six (6) months from birth. (ORD-15-0017, § 2, 2015)

6.20.180 Goats—Neutered males.

Male goats shall be neutered. (ORD-15-0017, § 2, 2015)

6.20.190 Goats—Distance from dwelling.

No person shall keep or maintain any live goat in the City within ten feet (10') of any other person's dwelling. (ORD-15-0017, § 2, 2015)

6.20.200 Goats—Enclosure and shelter.

A. Adequate enclosure or fencing must be provided to contain live goats on the property to prevent escape. The enclosure must be a minimum size of two hundred fifty (250) square feet of permeable land for the keeping of two (2) miniature goats (commonly known as pygmy and dwarf goats), or five hundred (500) square feet of permeable land for the keeping of any other combination of miniature and non-miniature goats.

B. Adequate shelter must be provided to protect the goats from the elements, and to prevent wildlife or other predators from gaining entry. (ORD-15-0017, § 2, 2015)

6.20.210 Rabbits or goats—Enclosure sanitation.

Wherever live rabbits or goats are permitted to be kept or maintained in the City, no person so keeping or maintaining such rabbits or goats shall fail at any time to keep the pens, hutches, spaces or other enclosures wherein such rabbits or goats are enclosed in a clean and sanitary condition or fail to remove the manure or other debris from such enclosures daily. No person shall fail to conform to and abide by the rules and regulations of the Health Department with reference to the keeping of such rabbits or goats in such enclosures. (ORD-15-0017, § 2, 2015)

6.20.220 Rabbits and goats—Running at large and keeping in front yard prohibited.

A. No person shall allow any rabbits or goats owned or controlled by such person to run at large.

B. No person shall allow any rabbits or goats, enclosure or related structure owned or controlled by such person to be placed or kept in the front yard of the property. (ORD-15-0017, § 2, 2015)

CHAPTER 6.22 INSECT CONTROL MEASURES

6.22.010 Insect control measures.

A. All premises shall be cleaned, and effective insecticides applied, as often as necessary to prevent the harboring of fleas, flies, roaches, stinging insects, venomous arachnids, and other insects that may be a danger to the public health. Stinging insects include, but are not limited to Africanized honeybees; and

B. It shall be unlawful for any property owner or tenant to maintain or permit a beehive, nest or swarm to exist that may pose a danger to the public health and safety. This includes a managed hive that has become Africanized. All beekeeping operations shall be registered with the Los Angeles County Department of the Agricultural Commissioner or designated agency; and

C. The prohibition regarding maintenance of beehives, nests or swarms shall not restrict the activities of a professional beekeeper if not in violation of the provisions of this Chapter or other City ordinances. For purposes of this Subsection, the term "professional beekeeper" shall

mean a person who holds a current registration as a beekeeper with the Los Angeles County Department of the Agricultural Commissioner or designated agency. (Ord. C-7666 § 1, 1999)

CHAPTER 6.24 PIGEONS AND BEES

6.24.010 Beehives.

A. No more than four (4) beehives may be established or maintained on any residential property within the City.

B. Any person intending to establish or maintain any beehive on any residential property within the City must first register with the County of Los Angeles and provide a copy of such registration to the Director of the Animal Care Services Bureau.

C. No person shall establish or maintain a beehive in the front yard of the property.

D. No person shall establish or maintain a beehive at a distance less than ten feet (10') from all property lines.

E. Beehive entrances shall face away from or be parallel to the nearest property line(s).

F. Beehives must either be screened so that the bees must fly over a six-foot barrier, which may be vegetative, before leaving the property, or be placed at least eight feet (8') above the adjacent ground level.

G. A water source for bees shall be provided at all times on the property where the bees are kept to discourage bee visitation at swimming pools, hose bibs and other water sources on adjacent public or private property.

H. For the purposes of this Section, a "beehive" means any box, container, structure, chamber or shelter within which bees are kept or of which bees have taken possession.

I. For the purposes of this Section, the term "dwelling" means any place of human habitation. (ORD-15-0017, § 3, 2015; Prior code § 5620.4)

6.24.020 Pigeon keeping.

A. Pigeons, which are not raised or kept for market or other commercial purpose, may be kept and liberated for exercise or racing if their enclosure is not less than thirty-five feet (35') from the owner's dwelling, and not less than fifty feet (50') from any other dwelling, and not less than one hundred feet (100') from a multiple dwelling.

B. Each person desiring to keep and liberate for exercise or racing such pigeons shall make a written application to, and upon forms furnished by the Health Officer. Such application shall state the name and address of the applicant and the address at which the pigeons will be kept and liberated. The Health Officer shall make or cause to be made an investigation of the application, and if he finds that all provisions of the Code have been and will be complied with, he shall issue the permit; otherwise the application for permit shall be denied. Such permits shall be good for one (1) year from date of issuance and shall be annually renewed in the same manner as that provided for the securing of a new permit. A fee as determined by the City Council by resolution shall be charged for the original permit and for each renewal thereof. Such permits shall be nontransferable and nonassignable.

C. Whenever the Health Officer determines from his examination or inspection that the holder of any permit issued under the provisions of this Section has violated any of the provisions of this Code, he may serve a written notice upon such permittee to appear before the Health Officer to show cause why the permit shall not be revoked. The notice shall contain a brief statement of the alleged violation and the time and place of hearing, which shall be held within ten (10) days after receipt of notice. The permittee may appear in person or with counsel, and present such evidence as he may desire regarding the alleged violation and show cause why his permit shall not be revoked. The Health Officer shall receive such information, evidence and testimony as may concern the circumstances of the alleged violation, and the formal rules of evidence shall not apply. If the Health Officer determines that any of the provisions of this Section or any other provisions of the Code regarding pigeons are being violated, he may temporarily suspend or revoke the permit, provided any such suspension period shall not exceed

ninety (90) days. Reinstatement of suspended permit shall not be effected unless the act, default or omission which was the ground for suspension has been remedied prior to the time of reinstatement.

D. Any person aggrieved by any finding, determination or act of the Health Officer shall, within ten (10) days from the date thereof, take whatever legal steps he may deem necessary to forestall or prevent such finding, determination or act from becoming final and conclusive.

E. Whenever any permit has been revoked under the terms of this Section, no other application for a permit to carry on a similar activity by the permit holder shall be considered for a period of one (1) year from the date of the revocation.

F. No person shall keep or maintain on any lot or parcel of land more than forty (40) live pigeons.

G. Wherever live pigeons are permitted to be kept or maintained in the City, no person so keeping or maintaining such pigeons shall fail at any time to keep the coops wherein such pigeons are enclosed in a clean and sanitary condition. No person shall fail to conform to and abide by the reasonable rules and regulations of the Health Department with reference to the keeping of such pigeons in such enclosures.

H. No person shall impound any live pigeons unless provision is made by such person for the proper feeding and the furnishing of water to such pigeons at intervals not longer than twelve (12) hours apart.

I. No person shall impound any live pigeons in a coop which is less than twice as large in floor space or standing room as the total size of all live pigeons which may be impounded therein, and which is not sufficiently high as to permit each pigeon impounded therein to stand in a natural erect position.

J. All feed for the pigeons shall be stored in containers which offer protection against rodents and insects; pigeon manure and other waste material arising from their maintenance shall be removed from permittee's premises at least once a week, or as often as it is necessary to prevent fly breeding, or other similar nuisance; such material shall be disposed of in a sanitary manner.

K. No person shall allow any pigeon owned or controlled by such person, except when said pigeon or pigeons are being exercised or raced through flight, to run at large.

L. The Health Officer shall have the right to inspect each such coop and pigeon house at such times as he deems advisable. (ORD-10-0014, § 11, 2010; Ord. C-5422 § 1, 1978; Ord. C-5408 § 1, 1978; Ord. C-5335 § 1, 1977; prior code § 5620.18)

CHAPTER 6.28 POLICE ANIMALS

6.28.010 Protection of animals utilized by Police Department.

It is unlawful for any person to wilfully tease, taunt, torment, strike, kick, mutilate, disable, or otherwise injure, or kill, or to interfere or meddle with any dog while such animal is being utilized by the Police Department or any officer or employee thereof, in the performance of any function or duty of the department, or of such officer or employee. (Ord. C-5731 § 1, 1981: prior code § 3530)

Title 7

(RESERVED)

Title 8

HEALTH AND SAFETY

Chapter 8.04 Health Department Services

8.04.010 X-rays.

Chapter 8.08 Communicable Diseases

8.08.010 Pneumonia or influenza—Quarantine.
8.08.020 Pneumonia or influenza—Entering or leaving premises.
8.08.030 Pneumonia or influenza—Report.
8.08.040 Report of illness.
8.08.050 Quarantine—Required.
8.08.060 Disinfecting premises.
8.08.070 Precautions against spread of disease.
8.08.080 Removal from premises.
8.08.090 Notice to school.
8.08.100 Exclusion of exposed person from school.
8.08.110 Preventive measures authorized.
8.08.120 Quarantine—Regulations.
8.08.130 Bringing diseased person into City.
8.08.140 Water vessel rat shields.
8.08.150 Preventing Health Officer admittance prohibited.
8.08.160 Rat control—Required.
8.08.170 Rat control—Docks and wharves.
8.08.180 Rat control—Slaughterhouses.
8.08.190 Rat control—Buildings and premises.
8.08.192 Rat control—Demolition of buildings.
8.08.200 Rat control—Accumulation of refuse.
8.08.210 Refuse container cleaning.
8.08.220 Offensive accumulation prohibited.
8.08.230 Lodging place sanitation.
8.08.240 Drains to be kept clear.
8.08.250 Depositing garbage in sewer prohibited.

Chapter 8.12 Drugs

8.12.010 Registration of health care specialists.
8.12.020 Registration of drug peddlers.
8.12.030 Prescriptions required for certain drugs.

Chapter 8.13 Personal Cultivation of Cannabis

8.13.010 Purpose.
8.13.020 Definitions.
8.13.030 Restrictions on Cultivation of Cannabis for Personal Use.

Chapter 8.16 Food Sale Regulations

8.16.010 Unsanitary wrapping—Use prohibited.
8.16.020 Unsanitary wrapping—Keeping on-premises prohibited.
8.16.030 Unsanitary wrapping—Exception.
8.16.040 Fruit and vegetables—Sale of unwholesome product prohibited.
8.16.050 Fruit and vegetables—Covering required.
8.16.060 Fruit and vegetables—Inspection authorized.
8.16.070 Fruit and vegetables—Packing or unpacking spoiled products.
8.16.080 Open air markets prohibited.

Chapter 8.17 Children's Meals

8.17.010 Purpose.
8.17.020 Definitions.
8.17.030 Default beverages in children's meals.
8.17.040 Inspection.
8.17.050 Enforcement.
8.17.060 Construction.
8.17.070 Severability.

Chapter 8.20 Bakeries

8.20.010 Bakery defined.
8.20.020 Elevation restricted.
8.20.030 Drainage and plumbing.
8.20.040 Construction standards.
8.20.050 Floors and ceilings.
8.20.060 Furnishings and utensils.
8.20.070 Dressing rooms.
8.20.080 Storage of ingredients and products.
8.20.090 Employee clothing.
8.20.100 Use as dwelling prohibited.
8.20.110 Dressing or clothes storage prohibited.
8.20.120 Tobacco use prohibited.
8.20.130 Communicable disease prohibited.
8.20.140 Animals and fowl prohibited.

8.20.150 Wrapping or covering products required.
8.20.160 Sealed storage of fruit, vegetables and syrups.
8.20.170 Interference with inspector prohibited.

Chapter 8.24 Fish Canneries

8.24.010 Zoning restriction.
8.24.020 Permit—Required.
8.24.030 Permit—Application.
8.24.040 Permit—Issuance—Suspension.
8.24.050 Unwholesome fish prohibited.
8.24.060 Dumping in harbor prohibited.
8.24.070 Refuse collection and removal.
8.24.080 Tobacco use prohibited.
8.24.090 Lavatory facilities.
8.24.100 Construction and equipment.
8.24.110 Inspection authorized.
8.24.120 Condemnation and removal of products.

Chapter 8.26 Industrial Hygiene Services

8.26.010 Purpose.
8.26.020 Scope.
8.26.030 Definitions.
8.26.040 Water supply.
8.26.050 Sanitary facilities.
8.26.060 Washing facilities.
8.26.070 Lunch rooms.
8.26.080 Sanitation of respiratory equipment.
8.26.090 Health hazards—General.
8.26.100 Health hazards—Health Officer power to declare a material as a toxic substance.
8.26.110 Health hazards—Inspections and orders.
8.26.120 Sanitation in places of employment.
8.26.130 Lighting.
8.26.140 Liquid discharge.
8.26.150 Aisle and passageway sanitation.
8.26.160 Maintenance of equipment.
8.26.170 Storage of chemicals.
8.26.180 Storage of unopened drums and carboys.
8.26.190 Storage of opened drums and carboys.
8.26.200 Stacking of opened carboys prohibited.

8.26.210 Identification and labeling of toxic substances.
8.26.220 Review of plans.
8.26.230 Violations.
8.26.240 Construction of Chapter.

Chapter 8.27 Community Lead Hazard Control/Abatement

8.27.010 Purpose.
8.27.020 Scope.
8.27.030 Definitions.
8.27.040 Inspection.
8.27.050 Violations.
8.27.060 Abatement procedure.
8.27.070 Abatement work plan.
8.27.080 Qualifications of persons employed to perform lead hazard control or removal.
8.27.090 Appeal—Order to control or remove hazard.

Chapter 8.28 Meat Processing

8.28.010 Definitions.
8.28.020 Inspection authorized.
8.28.030 Sales regulations.
8.28.040 Slaughterhouse location.
8.28.050 Refrigeration plant—Inspection.
8.28.060 Refrigeration plant—Uninspected meat—Storage.
8.28.070 Refrigeration plant—Uninspected meat—Deposit statement contents.
8.28.080 Refrigeration plant—Uninspected meat—Deposit statement filing.
8.28.090 Refrigeration plant—Uninspected meat—Withdrawal from storage.
8.28.100 Refrigeration plant—Uninspected meat—Withdrawal statement.
8.28.110 Boiling offal, tallow or lard.

Chapter 8.32 Meat Sales Initiative Ordinance

8.32.010 Initiative set out.

Chapter 8.36 Milk and Milk Products

8.36.010 Definitions.
8.36.020 Permit—Milk.
8.36.030 Permit—Milk products.
8.36.040 Permit—Applicant investigation.
8.36.050 Permit—Suspension, revocation or expiration.
8.36.060 Permit—Suspension or revocation notice.

8.36.070 Change of ownership or location.
8.36.080 Tuberculin testing of cows required.
8.36.090 Milk fats and solids required.
8.36.100 Raw milk bottling.
8.36.110 Acceptance of other inspection services.
8.36.120 Milk delivery hours.

Chapter 8.40 Mobile Food Facilities

8.40.010 Construction.
8.40.020 Inspection days.

Chapter 8.44 Food Facilities

8.44.010 Definitions.
8.44.020 Compliance required.
8.44.030 License and Permit—Applicant investigation.
8.44.040 License and permit - required.
8.44.050 License and permit - application contents.
8.44.060 Permit—Issuance.
8.44.061 Inspection.
8.44.062 Emergency closure.
8.44.070 License and permit display.
8.44.080 Permit—Suspension and Revocation—Hearing.
8.44.090 Permit—Revocation—Reapplication.
8.44.100 Menu with prices required.
8.44.110 Cafeteria—Price tags required.
8.44.120 Communicable disease prohibited.

Chapter 8.45 Food Facility

8.45.010 Food facility inspection report.
8.45.020 Inspection summary report.
8.45.030 Notice of closure.
8.45.040 Routine inspection.
8.45.050 Posting requirements—Penalty for noncompliance—Documents available for public review.
8.45.060 Inspection summary report—Period of validity.
8.45.070 Public health permit suspension or revocation—Notice of closure.
8.45.080 Violation.
8.45.090 Severability.

Chapter 8.46 Disposal of Fats, Oils and Grease

8.46.010 Definitions.
8.46.020 Public nuisance and public health hazard.
8.46.030 Requirements for food facilities.
8.46.040 Requirements for grease interceptors.
8.46.050 Requirements for grease traps.
8.46.060 Enforcement.
8.46.070 Administrative hearing procedure.
8.46.080 Exemptions.
8.46.090 Severability.
8.46.100 Complementary to Chapter 15.20.

Chapter 8.48 Dairies and Hog Ranches

8.48.010 Definitions.
8.48.020 Areas prohibited.
8.48.030 Exceptions.

Chapter 8.52 Fumigating and Disinfecting

8.52.010 Notice to Health Officer.

Chapter 8.56 Weed Removal

8.56.010 Purpose.
8.56.020 Definitions.
8.56.030 Nuisance.
8.56.040 Notice—Form.
8.56.050 Notice—Service.
8.56.060 Appeal hearing—Service of notice.
8.56.070 Appeal—Hearing—Procedure.
8.56.080 Owner removal notice.
8.56.090 City removal—Authorized.
8.56.100 City removal—Lot cleaning levy computation.
8.56.110 City removal—Lot cleaning levy payment notice.
8.56.120 Hearing on charges.
8.56.130 Interest of charges.
8.56.140 Transfer of collection.
8.56.150 Method of collection.
8.56.160 Tax—Sold property.
8.56.170 Tax—Sold property—Redemptions.
8.56.180 Error correction—Assessment cancellation.

8.56.190 Interfering with enforcement prohibited.
8.56.200 No dumping—Property may be posted.
8.56.210 Civil penalty—City removal more than once.

Chapter 8.58 Graffiti Abatement

8.58.010 Purpose.
8.58.020 Definitions.
8.58.030 Nuisance.
8.58.040 Notice—Form.
8.58.050 Notice—Service.
8.58.060 Appeal hearing—Service of notice.
8.58.070 Appeal—Hearing—Procedure.
8.58.080 Owner removal notice.
8.58.090 City removal—Authorized.
8.58.100 City removal—Graffiti abatement levy computation.
8.58.110 City removal—Graffiti abatement levy payment notice.
8.58.120 Hearing on charges.
8.58.130 Interest of charges.
8.58.140 Transfer of collection.
8.58.150 Method of collection.
8.58.160 Tax—Sold property.
8.58.170 Tax—Sold property—Redemptions.
8.58.180 Error correction—Assessment cancellation.
8.58.190 Interfering with enforcement prohibited.
8.58.200 Civil penalty—City removal more than once.
8.58.210 Delegation of duties.

Chapter 8.59 Reserved

Chapter 8.60 Solid Waste, Recycling and Litter Prevention and Mandatory Organic Waste Disposal Reduction

8.60.010 Definitions.
8.60.020 Adequate receptacles or bins required.
8.60.025 Receptacles—Specifications.
8.60.030 City receptacles—Additional requirements.
8.60.040 Green waste.
8.60.050 Waste requiring special handling.
8.60.060 Placement of solid waste receptacles for collection.
8.60.070 Time of placement for collection.
8.60.080 Refuse transportation permit—Required.

8.60.081 Insurance.
8.60.082 Refuse transportation permit—Application and renewal.
8.60.084 Permit issuance and term.
8.60.085 Display of permits—Identification of vehicles and receptacles.
8.60.086 Reporting requirements.
8.60.087 Operating requirements for permittees.
8.60.087.5 Automatic enrollment in Recycling and Organics program.
8.60.088 Suspension or revocation of permits—Cause.
8.60.089 Illegal haulers, default and impoundment.
8.60.090 Procedure for permit suspension or revocation.
8.60.091 Transferability of refuse transportation permits.
8.60.093 Number of general transportation permits.
8.60.100 Vehicles conveying refuse.
8.60.110 Refuse falling in street.
8.60.111 Throwing rubbish and refuse on public right-of-way or storm drain system prohibited.
8.60.113 Illegal dumping in street sweeping roll-off containers prohibited.
8.60.120 Illegal dumping prohibited—Permit revocation.
8.60.130 Removal of waste from receptacles.
8.60.140 Collection charges.
8.60.150 Billing—Period.
8.60.160 Mixed permanent and transient occupancy.
8.60.180 Determination of volume.
8.60.190 Special service.
8.60.200 Billing—Liability for payment.
8.60.210 Billing—Rental property.
8.60.220 Billing—Establishment of procedures.
8.60.230 Administration.
8.60.240 Municipal refuse services use required—Exceptions.
8.60.250 Accumulation time limit.
8.60.260 Maintenance of clean sidewalks and alleys.
8.60.270 Provision of waste receptacles for public use.
8.60.350 Refund of refuse and/or recycling collection charges.
8.60.360 Penalty for defacing or removing refuse carts and recycling bins.
8.60.370 Mandatory organic waste disposal reduction.

Chapter 8.61 Shopping Carts

8.61.010 Definitions.
8.61.020 Cart containment system—Required; exception.
8.61.030 Cart removal warnings.

8.61.040 Employee training—Cart removal prevention.
8.61.050 Cart identification signs for shopping carts.
8.61.060 Cart removal from business premises—Written permission required.
8.61.070 Physical containment system.
8.61.080 Regulatory fee authorized.
8.61.090 Service procedures.
8.61.100 Contents of notice.
8.61.110 Satisfaction of administrative citation.
8.61.120 Appeal of administrative citation.
8.61.130 Dismissal of citation.
8.61.140 Right to judicial review.
8.61.150 Recovery of abatement costs.
8.61.160 City powers not limited by this Chapter.
8.61.170 Additional nonadministrative penalty.

Chapter 8.62 Plastic Carryout Bags

8.62.010 Definitions.
8.62.020 Plastic carryout bags prohibited.
8.62.030 Permitted bags.
8.62.040 Regulation of recyclable paper carryout bags.
8.62.050 Use of reusable bags.
8.62.060 Exempt customers.
8.62.070 Operative date.
8.62.080 Enforcement and violation-Penalty.
8.62.090 Severability.
8.62.100 No conflict with federal or State law.

Chapter 8.63 Polystyrene Food Packaging

8.63.010 Purpose.
8.63.020 Definitions.
8.63.030 Prohibition against distribution or sale of polystyrene food service ware.
8.63.040 Administrative rules and regulations.
8.63.050 Exemption from compliance with this Chapter.
8.63.060 Authority to inspect and to monitor.
8.63.070 Operative date.
8.63.080 Appeal.
8.63.090 Violation of this Chapter.
8.63.100 Enforcement and violation - penalty.
8.63.110 Remedies not exclusive.

8.63.120 Severability.

Chapter 8.64 Air Pollution

8.64.010 Director defined.
8.64.020 Smoke discharge.
8.64.030 Offensive matter discharge.
8.64.040 Fumes and odors.
8.64.050 Exceptions.
8.64.060 Right of entry for inspection.
8.64.070 Variance—Authorized.
8.64.080 Variance—Hearing.
8.64.090 Variance—Setting standards.
8.64.100 Variance—Refuse or rubbish burning.
8.64.110 Variance—Effective time.
8.64.120 Variance—Modification or revocation—Authorized.
8.64.130 Variance—Modification or revocation—Hearing.

Chapter 8.65 Mobile Source Air Pollution Reduction

8.65.010 Findings and intent.
8.65.020 Definitions.
8.65.030 Administration of vehicle registration fee.
8.65.040 Audits.
8.65.050 Legal construction.

Chapter 8.68 Smoking in Public Places

8.68.010 Purpose and findings.
8.68.020 Definitions.
8.68.030 Smoking prohibited—Elevators.
8.68.040 Smoking prohibited—Hospitals, healthcare facilities and childcare facilities.
8.68.050 Smoking prohibited—Public meeting rooms.
8.68.060 Smoking prohibited—Enclosed public places.
8.68.065 Smoking prohibited—City beaches, beach bike path and beach launch ramps.
8.68.066 Smoking prohibited—City parks and other recreation areas.
8.68.070 Smoking prohibited—Public restrooms.
8.68.075 Smoking prohibited—Bus stops.
8.68.080 Smoking prohibited—Indoor service lines.
8.68.085 Smoking prohibited—Farmers' markets.
8.68.090 Smoking prohibited—Eating establishments, bars, and outdoor dining areas.
8.68.095 Mobile food preparation vehicle.

8.68.100 Smoking prohibited—Retail food production and marketing establishments.
8.68.110 Regulation of smoking in the workplace.
8.68.120 Prohibition of electronic cigarette use in smoke-free places and other regulations.
8.68.130 Posting of signs required.
8.68.140 Structural modifications not required.
8.68.150 Administration and enforcement.
8.68.160 Exemptions; Cannabis Special Events.
8.68.170 City Facilities.
8.68.180 Tobacco products distribution.
8.68.190 Billboard advertising.
8.68.200 Violations and penalties.
8.68.210 Retaliation.
8.68.220 Severability.

Chapter 8.72 Sawdust Storage

8.72.010 Storage in garage prohibited.

Chapter 8.76 Property Maintenance

8.76.010 Prohibited uses.
8.76.015 Security screens—Appearance standards.
8.76.017 Reserved.
8.76.020 Abatement—Notice.
8.76.030 Abatement—Hearing—Notice—Form.
8.76.040 Abatement—Hearing—Notice—Service.
8.76.050 Abatement—Hearing—Procedure.
8.76.060 Abatement—Hearing—Determination.
8.76.070 Abatement—Appeal—Contents.
8.76.080 Abatement—Appeal—Hearing.
8.76.090 Abatement—Appeal—Decision.
8.76.100 Abatement by City—Authorized.
8.76.101 Owner's responsibility for enforcement costs.
8.76.110 Abatement by City—Notice.
8.76.120 Abatement by City—Charges—Statement.
8.76.130 Abatement by City—Charges—Hearing.
8.76.140 Abatement by City—Charges—Certification to Tax Collector.
8.76.150 Abatement by City—Charges—Collection.
8.76.160 Abatement by City—Sale for delinquent taxes—Charges added to record.
8.76.170 Abatement by City—Sale for delinquent taxes—Certificate of redemption.
8.76.180 Abatement by City—Error correction.

8.76.190 Abatement by City—Charges—Refund.
8.76.200 Alternative remedies.
8.76.205 Criminal prosecution.
8.76.210 Penalty for violation.
8.76.215 Civil penalty—City abatement more than once.

Chapter 8.77 Urban Agriculture Incentive Zone (UAIZ) Act

8.77.010 Purpose.
8.77.020 Eligibility criteria.
8.77.030 Administration.
8.77.040 Required provisions of Urban Agriculture Incentive Contract.
8.77.050 Procedures for application and execution of an Urban Agriculture Incentive Zone Contract.
8.77.060 Recordation of the executed Urban Agriculture Incentive Zone Contract.
8.77.070 Enforcement.
8.77.080 Severability.

Chapter 8.80 Noise

8.80.010 Policy.
8.80.020 Definitions.
8.80.030 Administration and enforcement.
8.80.040 Noise control office—Powers.
8.80.050 Noise Control Officer—Duties.
8.80.060 City departments—Policy conformance.
8.80.070 City departments—Cooperation.
8.80.080 City departments—Legal compliance.
8.80.090 City departments—Project approval.
8.80.100 City departments—Review of actions.
8.80.110 City departments—Contract compliance.
8.80.120 City departments—Low noise emission product use.
8.80.130 Disturbing noises prohibited.
8.80.140 Noise measurement procedure.
8.80.150 Exterior noise limits—Sound levels by receiving land use district.
8.80.160 Exterior noise limits—Correction for character of sound.
8.80.170 Interior noise limits—Sound levels.
8.80.180 Interior noise limits—Correction for character of sound.
8.80.190 Noise disturbances—Prohibited.
8.80.200 Noise disturbances—Acts specified.
8.80.202 Construction activity—Noise regulations.

8.80.210 Refuse collection vehicles.
8.80.220 Motor vehicle horns.
8.80.230 Recreational motorized vehicles operating off the public right-of-way.
8.80.240 Vehicle, motorboat or aircraft repair and testing.
8.80.250 Exemption—Emergencies.
8.80.260 Exemption—Oil and gas wells.
8.80.270 Exemption—Warning devices.
8.80.280 Exemption—Entertainment events.
8.80.290 Exemption—From exterior noise standards.
8.80.300 Abatement of nonconforming industrial noise sources.
8.80.310 Exemption—Federal or State preempted activities.
8.80.320 Conflicting regulations.
8.80.330 Exemption—Public health, welfare and safety activities.
8.80.340 Variance—Exemption from regulations.
8.80.350 Variance—Time to comply.
8.80.360 Variance—Appeal to decision.
8.80.370 Violation—Presumed.
8.80.380 Violation—Penalty.
8.80.390 Violation—Abatement order.
8.80.400 Violation—Notice.
8.80.410 Violation—Additional remedies.

Chapter 8.81 Fireworks

8.81.010 Definitions.
8.81.020 General prohibition against possession, sale or use of Fireworks.
8.81.030 General prohibition against possession, sale or use of Dangerous Fireworks.
8.81.040 Seizure of fireworks.
8.81.050 Host's liability.
8.81.060 Violation penalty.

Chapter 8.85 Underground and Above ground Storage Tanks

8.85.010 Creation of Long Beach CUPA.
8.85.020 Definitions.
8.85.030 Designation of Long Beach CUPA as local agency for underground storage tanks.
8.85.040 Designation of Long Beach CUPA as Unified Program Agency for above ground storage tanks.
8.85.050 Fees.
8.85.060 Violations.

Chapter 8.86 Hazardous Materials Release Response Plans and Inventory

8.86.010 Definitions.
8.86.020 Delegation of administrative responsibility.
8.86.030 Fees.
8.86.040 Violations.

Chapter 8.87 Hazardous Waste Control

8.87.010 Purpose and intent.
8.87.020 Definitions.
8.87.030 Designation of Long Beach CUPA.
8.87.040 Fees.
8.87.050 Violations.

Chapter 8.88 Hazardous Materials—Cleanup

8.88.010 Purpose.
8.88.020 Scope.
8.88.030 Definitions.
8.88.040 Site characterization.
8.88.050 Site remediation.
8.88.060 Initial and final reports.

Chapter 8.90 Alcoholic Beverages—Warning Signs

8.90.010 Signs—Dangers of consuming alcoholic beverages during pregnancy.

Chapter 8.94 AIDS Discrimination

8.94.010 Definitions.
8.94.020 Employment practices.
8.94.030 Housing and other real estate transactions.
8.94.040 Business establishments.
8.94.050 City facilities and services.
8.94.060 Contracts to include nondiscrimination provisions.
8.94.070 Advertising.
8.94.080 Retaliation.
8.94.090 Liability.
8.94.100 Enforcement.
8.94.110 Limitation on action.
8.94.120 Preemption.
8.94.130 Exceptions.
8.94.140 Severability.

Chapter 8.95 Domestic Partnership Registration

8.95.010 Definition.
8.95.020 Domestic partnership.
8.95.030 Statement of Domestic Partnership.
8.95.040 Termination of domestic partnership.
8.95.050 Maintenance of records.
8.95.060 Fees.
8.95.070 Civil actions.
8.95.080 Retaliation.
8.95.090 Healthcare facilities visitation rights.
8.95.100 Jail visitation rights.
8.95.110 Durable power of Attorney.
8.95.120 Limited effect.

Chapter 8.96 Stormwater and Runoff Pollution Control

8.96.010 Title.
8.96.020 Statutory authority.
8.96.030 Purpose and intent.
8.96.040 Definitions.
8.96.050 Illicit discharges and non-stormwater discharges.
8.96.060 Illegal disposal/dumping.
8.96.070 Illicit connections.
8.96.080 Reduction of pollutants in runoff.
8.96.090 Control of pollutants from commercial facilities.
8.96.100 Control of pollutants from industrial activities.
8.96.110 Control of pollutants from construction activities requiring Construction General Permit coverage.
8.96.120 Control of pollutants from other construction activities.
8.96.130 Control of pollutants from new development/redevelopment projects.
8.96.140 Inspections and monitoring.
8.96.150 Violations.
8.96.160 Enforcement actions.
8.96.170 Abatement.
8.96.180 Penalties.
8.96.190 Appeal.
8.96.200 Remedies not exclusive.
8.96.210 Fees.
8.96.220 Compliance responsibility.

8.96.230 Multi-Agency agreements.
8.96.240 Miscellaneous provisions.

Chapter 8.97 Reserved

Chapter 8.98 Temporary Prohibition of No-Fault Notices and Evictions

8.98.010 Purpose.
8.98.020 Definitions.
8.98.030 Prohibition on no fault notices and evictions.
8.98.040 Application.
8.98.050 Severability.

Chapter 8.99 Just Cause for Termination of Tenancies

8.99.010 Findings and purpose.
8.99.020 Just cause termination of tenancy protections.

Chapter 8.100 Temporary Prohibition of Evictions Due to COVID-19

8.100.010 Purpose.
8.100.020 Definitions.
8.100.030 Prohibition on Evictions.
8.100.040 Pay-or-Quit Notices.
8.100.050 Grace Period.
8.100.060 Affirmative Defense.
8.100.070 Application.
8.100.080 Severability.

Chapter 8.101 Tenant Harassment

8.101.010 Purpose.
8.101.020 Definitions.
8.101.030 Prohibition of tenant harassment.
8.101.040 Remedies and penalties.
8.101.050 Severability.
8.101.060 Lawful Evictions.

Chapter 8.102 Temporary Prohibition of Demolition and Substantial No-Fault Notices and Evictions

8.102.010 Purpose.
8.102.020 Definitions.
8.102.030 Prohibition on no fault demolition and/or substantial remodel notices and evictions.
8.102.040 Severability.

HEALTH AND SAFETY

Chapter 8.110 Reserved

Chapter 8.120 Reserved

CHAPTER 8.04 HEALTH DEPARTMENT SERVICES

8.04.010 X-rays.

The Health Department is empowered to furnish free of charge, minifilm X-rays for the benefit of persons who are residents of the City and who are applicants for licenses from the State Department of Social Services authorizing such person to maintain or conduct an institution, boarding home, day nursery or other place for the reception or care of children under sixteen (16) years of age, or to engage in the business of receiving or caring for such children, or of receiving or caring for such child in the absence of its parents. The Health Department may also furnish such films for nonresidents of the City upon payment of a fee as determined by the City Council by resolution. (ORD-10-0014, § 12, 2010; Prior code § 5160)

CHAPTER 8.08 COMMUNICABLE DISEASES

8.08.010 Pneumonia or influenza—Quarantine.

Whenever a person affected with pneumonia of a communicable, contagious or infectious nature or with influenza is reported to the Health Department, and upon making investigation the Health Department is satisfied that the report is correct, or that the condition of such person is strongly suggestive of communicable, contagious or infectious pneumonia or influenza, the Health Department shall establish a quarantine of the premises where the disease exists by affixing a placard, consisting of a white card with the name of the disease printed thereon in blue letters not less than two and one-half inches (2½") in height, in a conspicuous place at the principal place of entrance of the premises, or at the principal place of entrance to the room, suite, apartment or flat where the premises is a hotel, apartment, lodging house, or rooming house, and the placard shall remain so affixed for five (5) days after all symptoms of the disease have disappeared and the premises have been thoroughly disinfected, or longer, at the discretion of the Health Department. (Prior code § 5120)

8.08.020 Pneumonia or influenza—Entering or leaving premises.

No person shall leave or enter any premises or remove any article from any premises so quarantined without permission in writing from the Health Department. (Prior code § 5120.3)

8.08.030 Pneumonia or influenza—Report.

Every physician, nurse, clergyman, attendant, parent or guardian of any person ill with communicable, contagious or infectious pneumonia or influenza shall immediately report the name, age and address of such ill person to the Health Department, and every owner, proprietor or manager of an apartment house, hotel, flat building or lodging house shall immediately report to the Health Department the name, age and address of every person ill of communicable, contagious or infectious pneumonia or influenza, in such apartment house, hotel, flat building or lodging house. (Prior code § 5120.4)

8.08.040 Report of illness.

It shall be the duty of every physician, householder, or other person in the City to report to the Health Officer immediately in writing every person in the City who is or whom they may have reason to believe is sick from cholera, smallpox, diphtheria, scarlet fever or any other contagious or infectious disease. (Prior code § 5120.5)

8.08.050 Quarantine—Required.

It shall be the duty of the Health Officer, as soon as any case of any person suffering from cholera, smallpox, diphtheria, yellow fever or scarlet fever or other dangerous or infectious disease is brought to his knowledge to immediately cause the house or building in which the person is located to be placarded in a conspicuous place, with a placard setting forth the fact of the existence of such disease, and the placard shall not be removed, nor shall any person unauthorized by the Health Officer be permitted to enter or leave such

dwelling or building until the Health Officer is satisfied that all danger from contagion is past and has removed the quarantine and placard. (Prior code § 5120.6)

8.08.060 Disinfecting premises.

Any person, householder or hotel keeper having a person suffering from any contagious or infectious disease in any house, dwelling or premises owned, conducted or controlled by him shall renovate, clean, purify and disinfect the same to any extent and in such manner as the Health Department may direct for the purpose of preventing further infection. (Prior code § 5120.7)

8.08.070 Precautions against spread of disease.

All persons attending or coming in contact with a case of infectious or contagious disease shall take such precautions against the spread of such disease and carry out such sanitary regulations as the Health Department may direct. (Prior code § 5120.8)

8.08.080 Removal from premises.

No person suffering from any infectious or contagious disease shall be removed from or leave the place where he first became sick without a permit from the Health Officer. The Health Officer may cause to be removed from such houses as cannot be satisfactorily quarantined, to a hospital or other place provided by the City for quarantine, any person affected with smallpox, yellow fever, typhus fever, glanders, leprosy, Asiatic cholera or other infectious or contagious diseases. (Prior code § 5120.9)

8.08.090 Notice to school.

It is the duty of the Health Officer to notify the superintendent of schools of the name and location of any person who is pupil at a public school, or the principal, teacher or other person in charge of any private school if a pupil at any such private school, when such person is suffering from any contagious disease. (Prior code § 5120.10)

8.08.100 Exclusion of exposed person from school.

It shall be the duty of every superintendent, principal or teacher, of any public or private school in the City to exclude from school any person suffering from any infectious or contagious disease, and any person who may belong or reside with a family or in the same house in which a person is affected with any infectious or contagious disease, until a permit is obtained from a registered physician stating that such person has permission to attend school. (Prior code § 5120.11)

8.08.110 Preventive measures authorized.

The Health Department may take such measures as it may from time to time deem necessary to prevent the spread of contagious disease. (Prior code § 5120.12)

8.08.120 Quarantine—Regulations.

It is the duty of the Health Department to make any and all regulations for the proper management and control of persons and places under quarantine in the City, and is the duty of the Health Officer to enforce the same. (Prior code § 5120.14)

8.08.130 Bringing diseased person into City.

That it is unlawful for any person to bring into the City any person afflicted with Asiatic cholera, yellow fever, typhus fever, plague, smallpox, scarlet fever, diphtheria, membranous croup, leprosy, anthrax or glanders affecting human beings. (Prior code § 5120.15)

8.08.140 Water vessel rat shields.

No owner, agent, master or other officer in charge of any vessel, steamboat or other watercraft, except vessels, steamboats or other watercraft engaged in domestic commerce, shall cause or permit the vessel, steamboat or other watercraft to lie alongside any wharf or dock in the City unless each chain, hawser, rope or line of any kind extending from any vessel, steamboat or other watercraft is equipped with and has properly and securely attached thereto, in good working order,

a rat shield or guard of such design and in such manner as shall be approved by the City Health Officer. (Prior code § 5120.16)

8.08.150 Preventing Health Officer admittance prohibited.

No person in charge of any building, premises, or part thereof shall refuse admission thereto to any inspector or other representative of the Health Department between the hours of nine o'clock (9:00 a.m.) in the morning and five o'clock (5:00 p.m.) in the afternoon of any business day when such inspector or other representative has announced his intention of entering such building, premises, or part thereof, for the purpose of inspecting it and ascertaining whether there exists therein or thereon any violation of the provisions of this Chapter; nor shall any person deny such access to such inspectors or representatives at any reasonable hour for purposes of quarantine. (Prior code § 5120.17)

8.08.160 Rat control—Required.

All food products or other products or goods liable to attract or to become infested with rats, whether such products or goods are kept for sale or any other purpose, shall be so protected as to prevent rats from gaining access thereto or coming in contact therewith. All buildings and basement walls thereof within which such products are stored or kept shall be constructed or repaired in such a manner as to prevent rats from being harbored thereunder or within the walls thereof. (Prior code § 5120.18)

8.08.170 Rat control—Docks and wharves.

All public and private docks and wharves shall be so protected as to prevent rats from gaining entrance to such docks or wharves, at either high or low tide, from vessels anchored or moored alongside of such docks or wharves, or from other sources, and all food products stored in docks or wharves shall be so kept and stored as to prevent rats from gaining access thereto or coming in contact therewith. All docks and wharves shall be subjected to a continuous rat eradication and control program. The Health Officer shall establish methods and scope of trapping and control. (Prior code § 5120.19)

8.08.180 Rat control—Slaughterhouses.

All slaughterhouses of every kind and nature shall be so protected as to prevent rats from gaining access to the building or buildings thereof, and all holes and openings in the building or basement walls shall be thoroughly stopped with cement or other material approved by the Health Officer, and all food products stored in slaughterhouses shall be so kept as to prevent rats from coming in contact therewith. (Prior code § 5120.20)

8.08.190 Rat control—Buildings and premises.

All buildings, places and premises whatsoever in the City shall at once be placed and shall continuously be kept by the owner or the occupant thereof in a clean and sanitary condition and free from rats. (Prior code § 5120.21)

8.08.192 Rat control—Demolition of buildings.

Before the City issues a building demolition permit, the owner shall present to the Building Official written certification from the Health Officer that the building is free from rat or vermin infestation. (Ord. C-6121 § 1, 1984)

8.08.200 Rat control—Accumulation of refuse.

No rubbish, waste or manure shall be placed, left, dumped or permitted to accumulate or remain in any building, place or premises in the City so that the same shall or may afford food or a harboring or breeding place for rats. (Prior code § 5120.22)

8.08.210 Refuse container cleaning.

The owner of any container provided for the storage or reception of refuse or garbage shall keep such container in a clean condition and in good repair to prevent fly breeding, odors, or

other nuisance. (Ord. C-5320 § 19, 1977: prior code § 5120.23)

8.08.220 Offensive accumulation prohibited.

No person shall permit any dead animal, manure, garbage, refuse, trash, decaying or offensive material to remain on any premises owned, controlled, or occupied by such person, or to deposit any such material upon any vacant lot or public street or place. Salvageable material shall be maintained or stored in a manner to prevent the possibility of a rodent harborage or breeding site for other insects. No person having control of, owning or occupying a premises shall permit any wastewater or other liquid to drain upon, drain from, or pool upon any such premises. Any yard, stable, or other enclosure where any animals, birds or fowl are kept shall be maintained in such a manner as to prevent a rodent or insect harborage or create an unhealthy or offensive condition. (Ord. C-5320 § 20, 1977: prior code § 5120.24)

8.08.230 Lodging place sanitation.

Every lodging, tenement or apartment house, and also any yard, court, passage, or alley connected with or belonging to such house, must be kept clean and free from any accumulation of dirt, filth, garbage or other offensive material. (Ord. C-5320 § 21, 1977: prior code § 5120.25)

8.08.240 Drains to be kept clear.

Every person conducting or managing any lodging, tenement or apartment house must take adequate precautions to prevent any improper substances entering any water closet, sink, hopper or drain, and must remove such improper substances when placed in a water closet, sink, hopper or drain. (Ord. C-5320 § 22, 1977: prior code § 5120.26)

8.08.250 Depositing garbage in sewer prohibited.

No person shall deposit swill, garbage, bottles, ashes, cans, coal, or other such improper substances in water closets, sinks, drains or hoppers connected to a sewer, except when such facility is equipped with a garbage disposal unit. (Ord. C-5320 § 23, 1977: prior code § 5120.27)

CHAPTER 8.12 DRUGS*

8.12.010 Registration of health care specialists.

No physician, surgeon, osteopath, midwife, professional nurse, dentist or any other person employing any method of healing the sick shall practice or carry on his profession, business or employment in the City until he has first registered as such with the Health Officer in a register kept by the Health Officer in his office for that purpose. No physician, surgeon, osteopath, or dentist shall be permitted to register unless he has first obtained a license from one (1) of the respective State Boards of Examiners. (Prior code § 5130)

8.12.020 Registration of drug peddlers.

No person shall peddle or dispense any medicine or drugs within the City until such person has first registered with the Health Officer, in a register kept by the Secretary in his office for that purpose, the name of the person wishing to peddle or dispense such medicines or drugs together with the names of the various medicines or drugs which they wish to peddle or dispense. If the Health Officer is satisfied that the peddling or dispensing of such medicines and drugs by such person does not conflict with any State laws or ordinances of the City, he may issue a permit to peddle and dispense the medicines and drugs named in the permit upon the payment of a fee as determined by the City Council by resolution. Nothing in this Chapter, however, shall apply to licensed pharmacists or travelling salesmen dealing directly with physicians or pharmacists. (ORD-10-0014, § 13, 2010; Prior code § 5130.1)

8.12.030 Prescriptions required for certain drugs.

No person shall barter, sell, dispense, or give away any veronal, veronal-sodium, barbital, bar-

***State law reference**—Provisions on the regulation of drugs, Health and S. C. § 11000 et seq.

bital sodium, brominyl and barbital, luminal or luminal-sodium, except under the prescription of a physician duly licensed to practice as such under and in accordance with the State laws, such prescription to be filled only once on the date of issuance thereof. Every such prescription shall be issued, signed, and dated by a duly licensed physician and shall have endorsed upon it by such physician the name and address of the person for whose use the prescription is made and the statement that in his opinion the drug so prescribed is required by the person as a medicine. No other form of prescription shall be deemed to be within the intent of this Section. All such prescriptions shall be kept on file for at least one (1) year and open at all times to the inspection of duly authorized officers of the City while the pharmacy is open for business. (Prior code § 5130.2)

CHAPTER 8.13 PERSONAL CULTIVATION OF CANNABIS

8.13.010 Purpose.

The purpose of this Chapter is to establish parameters, consistent with State Law, regarding the personal cultivation of cannabis. (ORD-20-0012 § 2, 2020)

8.13.020 Definitions.

"Private Residence" means a house, an apartment unit, a mobile home or other similar dwelling.

"Public Place" or "Public" means any real property owned, leased, or used by a public entity and any place on private property open to the public, common areas of buildings, private clubs, vehicles, those portions of any private property upon which the public has an express or implied license to enter or remain, and any place visible from such places. "Place open to the public" does not mean any fenced area or a private residence regardless of whether it can be seen from a place open to the public. (ORD-20-0012 § 2, 2020)

8.13.030 Restrictions on Cultivation of Cannabis for Personal Use.

Maximum Number of Plants for Adult Use.

A. Not more than six (6) living plants may be planted, cultivated, harvested, dried or processed within a single private residence, or upon the grounds of a private residence at one time.

B. The living plants and any cannabis produced by the plants in excess of 28.5 grams shall be kept within the individual's private residence, or upon the grounds of that private residence (e.g., an outdoor garden), shall be kept in a locked space, and shall not be visible by normal unaided vision from the public space. (ORD-20-0012 § 2, 2020)

CHAPTER 8.16 FOOD SALE REGULATIONS

8.16.010 Unsanitary wrapping—Use prohibited.

No dealer shall use or furnish any unsanitary wrapping in the sale, dispensing, giving away, or delivery of any food. (Prior code § 5520)

8.16.020 Unsanitary wrapping—Keeping on-premises prohibited.

No dealer shall keep on his premises any unsanitary wrapping for use in the sale, dispensing, giving away, or delivery of any food. (Prior code § 5520.1)

8.16.030 Unsanitary wrapping—Exception.

The provisions of Sections 8.16.010 and 8.16.020 shall not apply where the purchaser furnishes the wrapping, other than newspaper, for use in wrapping his own purchase. (Prior code § 5520.2)

8.16.040 Fruit and vegetables—Sale of unwholesome product prohibited.

No person shall sell, offer for sale or have in his possession with intent to sell any fruit or vegetables infected with scale or other insects, or which has been frozen or affected by frost, wholly decomposed or partially decomposed so as to be unwholesome or unfit for food, or affected in any manner

so as to be unwholesome or unfit for food. (Prior code § 5530)

8.16.050 Fruit and vegetables—Covering required.

A. All fruits and vegetables exposed for sale, except the following: Irish spuds, sweet spuds, dry onion, beets, parsnips, carrots, garlic, peppers, cucumbers, eggplant, brussels sprouts, green lima beans, string beans, green peas, oyster plant, squash, pumpkin, watermelons, cantaloupes, casaba, bananas, oranges, tangerines, lemons, grapefruit, apples and pineapples, shall at all times be kept covered with gauze, screen wire, mosquito netting, or electric fan or fans to which ribbons of sufficient length are attached so as to protect the same from dirt, dust, flies and other insects; provided, however, that the provisions of this Section shall not apply to the handling of fruit or vegetables in the delivery thereof by wholesale dealers and produce men to the retailer when such fruit or vegetable is enclosed in sanitary boxes or cases, covered with canvas or burlap.

B. All dried, candied or cured fruit shall at all times be kept in a glass case or under glass so as to protect the same from dust, dirt, flies and other insects. (Prior code § 5530.1)

8.16.060 Fruit and vegetables—Inspection authorized.

All places where fruits or vegetables are kept or offered for sale shall be subject at all times to inspection by the Health Officer or other officers appointed for that purpose, and such officers are authorized to enter and inspect all such places. (Prior code § 5530.2)

8.16.070 Fruit and vegetables—Packing or unpacking spoiled products.

No person, whether as principal, agent, servant, employee, or otherwise, shall pack, unpack, crate or uncrate any fresh fruits or vegetables, or keep or store any fresh fruits or vegetables, that have become spoiled or decayed, except within a building or structure so constructed, arranged, and used as to confine all noises and odors within the same. (Prior code § 5530.3)

8.16.080 Open air markets prohibited.

No person shall operate, conduct or maintain any grocery market unless located in a building having walls on all four (4) sides. (Prior code § 5560)

CHAPTER 8.17 CHILDREN'S MEALS

8.17.010 Purpose.

Recognizing the dangers of childhood obesity and the connection between this epidemic and sugar-sweetened beverages, the purpose of this Chapter is to promote healthy lifestyles in the children and youth of the City of Long Beach and to combat the childhood obesity epidemic by limiting the beverages offered in meals for children and youth to healthy choices. (ORD-17-0027 § 1, 2017)

8.17.020 Definitions.

A. "Children's meal" means a combination of food items, or food item(s) and a beverage, sold together as a single price, primarily intended for consumption by children.

B. "Restaurant" means a food establishment that serves food to customers for consumption on- or off-premises, including fast-food and full-service dining establishments. It includes, but is not limited to, drive-through or walk-up counters, coffee shops, cafes, pizza parlors, and dine-in establishments. A restaurant, for purposes of this Chapter, may provide alcoholic beverage sales for drinking onpremises, provided that such sales are ancillary to food service.

C. "Default beverage" means the beverage automatically included or offered as part of a children's meal, absent a specific request by the purchaser of the children's meal for an alternative beverage. (ORD-17-0027 § 1, 2017)

8.17.030 Default beverages in children's meals.

A. A restaurant that sells a children's meal that includes a beverage shall make the default beverage offered with the children's meal one of the following:

1. Water, sparkling water, or flavored water, with no artificial sweeteners or additives;

2. Nonfat or one percent (1%) milk, or non-dairy milk alternative that is under one hundred thirty (130) calories per container and/or serving offered for sale; or

3. One hundred percent (100%) juice, with no artificial sweeteners or additives, that is under forty (40) calories per serving.

B. Nothing in this Section prohibits a restaurant's ability to sell, or a customer's ability to purchase, a substitute or alternative beverage instead of the default beverage offered with a children's meal, if requested by the purchaser of the children's meal. (ORD-17-0027 § 1, 2017)

8.17.040 Inspection.

All restaurants shall be subject to inspections conducted on a periodic basis pursuant to Chapter 8.44 of this Code and any other applicable laws to determine whether they comply with the requirements of this Chapter. (ORD-17-0027 § 1, 2017)

8.17.050 Enforcement.

In addition to all other available remedies at law, this Chapter shall be enforceable through the use of the administrative citation procedures set forth in Chapter 9.65 of this Code. (ORD-17-0027 § 1, 2017)

8.17.060 Construction.

This Chapter shall be construed so as not to conflict with applicable federal or state laws, rules, or regulations. Nothing in this Chapter authorizes any City agency to impose any duties or obligations in conflict with limitations on municipal authority established by federal or state law. (ORD-17-0027 § 1, 2017)

8.17.070 Severability.

If any provisions of this Chapter, or the application thereof to any person or circumstance, is held invalid, that invalidity shall not affect any other provision or application of this Chapter that can be given effect without the invalid provision or application; and to this end, the provisions or applications of this Chapter are severable. (ORD-17-0027 § 1, 2017)

CHAPTER 8.20 BAKERIES

8.20.010 Bakery defined.

A "bakery" means any room or place where bread, crackers, cakes, pies, breadstuffs, of any kind or any product of flour or meal are baked or cooked or mixed or prepared for baking or cooking or for sale for food; provided, however, that the term "bakery" shall not be deemed to include restaurants, hotels, cafes, boarding houses or other public eating places. (Prior code § 5540)

8.20.020 Elevation restricted.

No person shall establish any bakery in any room or place, the floor of which is more than four feet (4') below the level of the adjacent street, walk or ground, provided this Section shall not apply to any clean, well-drained and sanitary room used exclusively for storage of flour, meal or other articles necessary in the preparation, baking or cooking of bread, crackers or cake, pies, breadstuffs of any kind, or any other products of flour or meal. (Prior code § 5540.1)

8.20.030 Drainage and plumbing.

Every building or room used for a bakery shall be well-drained and all plumbing shall conform to the ordinances regulating plumbing, and all rules and regulations that may be adopted by the Health Department. No water closet, urinal, earthen closet or privy shall be within or communicated with any room where bread or other breadstuffs or products of meal or flour are cooked, baked or mixed or prepared for cooking or baking. (Prior code § 5540.2)

8.20.040 Construction standards.

Every building or room used for a bakery shall be of good workmanship; the floors, walls and ceiling shall be clean and dry and so constructed as to exclude rats, mice, insects and all other vermin. Ample toilet facilities shall be provided in all bakeries, separate and apart from any utensils used in the preparation of bakery products, so as to enable employees therein or thereof to keep their persons clean. (Prior code § 5540.3)

8.20.050 Floors and ceilings.

The floors in all bakeries must be smooth and have an impregnable surface and be constructed of wood, cement or tile laid in cement. The rooms shall be not less than eight feet (8') in height; all ceilings and sidewalls shall be tight and well constructed and whitewashed or painted at intervals not longer than twelve (12) months and oftener, if for sanitary reasons the Health Department deems it necessary. (Prior code § 5540.4)

8.20.060 Furnishings and utensils.

All furnishings, utensils, and receptacles used in or about the preparation of bakery products shall be kept clean. (Prior code § 5540.5)

8.20.070 Dressing rooms.

Dressing rooms for employees or other persons shall be separated from the bakery or storage rooms of a bakery by walls or other substantial partitions at least six feet (6') in height. (Prior code § 5540.6)

8.20.080 Storage of ingredients and products.

All raw materials capable of being used in the preparation of bakery products and all bakery products shall be thoroughly enclosed, covered or protected from dust and dirt at all times while said bakery is being swept, dusted, or cleaned. (Prior code § 5540.7)

8.20.090 Employee clothing.

Every person employed in any bakery shall, while engaged in or about such work, wear shoes or slippers and an external suit of coarse linen or

other washable material, and such slippers, shoes and garments shall at all times be kept clean and in a sanitary condition. (Prior code § 5540.8)

8.20.100 Use as dwelling prohibited.

No person shall use for the purpose of a dwelling or sleep in any bakery or storage room or any room having a door opening or leading into any such bakery or store room connected or used in connection with or belonging to any bakery. (Prior code § 5540.9)

8.20.110 Dressing or clothes storage prohibited.

No person shall dress or undress or leave or store any clothing in any bakery or store room connected therewith. (Prior code § 5540.10)

8.20.120 Tobacco use prohibited.

No person shall smoke or chew tobacco or use the same in any form or manner in any bakery or store room connected therewith. (Prior code § 5540.11)

8.20.130 Communicable disease prohibited.

No person affected with pulmonary tuberculosis, venereal disease or other communicable disease shall work or be employed in any bakery, and no person shall employ any such person to work or be employed in any bakery. (Prior code § 5540.12)

8.20.140 Animals and fowl prohibited.

No person shall keep any animal or fowl in any bakery or store room connected therewith, and no person shall conduct any bakery in any building where any animal or fowl is kept. (Prior code § 5540.13)

8.20.150 Wrapping or covering products required.

No person shall receive for sale, sell, offer for sale or keep for sale, any bread without having each loaf of such bread entirely covered with oiled, grease-proof parchment or paraffin paper, or carry, transport or convey any bread or bakery products upon or along any street, alley, thoroughfare or open space unless the same is thoroughly enclosed or covered and protected from dust, dirt, flies or other insects, or deliver or leave any bread or bakery products on any porch, step, open or exposed place unless such article so delivered or left is thoroughly enclosed, covered and protected; provided, however, that the provisions of this Section shall not prohibit the display of bread under a showcase or in a window properly protected from flies, where the same is manufactured and sold on the same premises. (Prior code § 5540.14)

8.20.160 Sealed storage of fruit, vegetables and syrups.

No person shall keep any fruit, vegetable or syrup in any tin vessel in any bakery or store room connected therewith, unless such vessel is so sealed or fastened as to prevent the air from entering same. (Prior code § 5540.15)

8.20.170 Interference with inspector prohibited.

No person shall refuse to permit or allow the Health Officer or any authorized inspector to enter or inspect or examine any portion of any bakery or other place where bakery products are cooked, kept, sold, or offered for sale. No person shall interfere with or hinder in any manner the Health Officer in the inspection or the examination of such bakery or other place where bakery products are kept, sold, offered for sale or prepared for transportation; or in the inspection or examination of any wagon or other conveyance or receptacle used for the cartage, transportation or conveyance of any bakery products in, upon, or along any street, alley, thoroughfare, or open space, or any private driveway or other private property. (Prior code § 5540.16)

CHAPTER 8.24 FISH CANNERIES

8.24.010 Zoning restriction.

No person shall clean or dress fish for commercial purposes except within a zone authorizing such use. (Prior code § 5550.12)

8.24.020 Permit—Required.

No person shall conduct or operate any fish cannery within the City without first applying for and receiving a fish cannery permit from the Health Officer. (Prior code § 5550.14)

8.24.030 Permit—Application.

Every applicant for a fish cannery permit shall file with the Health Officer a written application therefor. The application shall state the name and address of the applicant and, if the applicant is not a permanent resident of the City, the name and address of the agent of the applicant residing in the City and having the management of the cannery. The application shall also contain a description of the property, by street and number, where it is proposed to conduct or operate, or cause to be conducted or operated, the fish cannery, and if the location thereof has no street number, then the description as will enable the same to be easily found. (Prior code § 5550.15)

8.24.040 Permit—Issuance—Suspension.

If, after investigating and considering such application, it appears to the Health Officer that the statements made therein are true, that the existing sanitary conditions in such place comply with the provisions of the laws and ordinances in force at the time of the application, and conform to the rules and regulations of the Health Department regulating the sanitary conditions of such places, the Health Officer shall grant the permit applied for; provided, however, that the permit shall be granted only upon the express condition that it shall be subject to suspension, for a period not exceeding ninety (90) days, by the Health Officer in his discretion and upon proof to his satisfaction of the violation by the holder of the fish cannery permit, his employee, servant, agent or any person acting with his consent or under his control, of any provision of any law of the State, or of any ordinance of the City or of any rule of the Health Department regulating fish canneries; and provided further, that no fish cannery permit shall be suspended without a hearing before the Health Officer in the matter of the suspension permit, and notice of the hearing shall be given, in writing, and served upon the holder of the fish cannery permit, his manager or agent, at least five (5) days prior to the date of the hearing, and the notice shall state the ground of complaint against the holder of the fish cannery permit, and shall state the time and place when and where the hearing will be had. The notice shall be served by delivering a copy thereof to the holder of the fish cannery permit or to his manager or agent, or to any person in charge of or employed at his fish cannery, or by leaving the notice at the place of business or place of residence of any such persons with some person over the age of eighteen (18) years; or if the holder of the permit cannot be found and personal service of the notice cannot be made upon him, or upon his manager, agent or person in charge of or employed in the fish cannery, or with some person over eighteen (18) years of age at his place of business or place of residence, then a copy of the notice shall be posted upon the cannery and a copy mailed, postage fully prepaid, addressed to the holder of the fish cannery permit at his last place of business, at least five (5) days prior to the date of the hearing. (Prior code § 5550.16)

8.24.050 Unwholesome fish prohibited.

No person conducting or carrying on any fish cannery in the City shall receive in such fish cannery, or upon the premises surrounding the same, any decomposed, tainted, corrupted, diseased or unwholesome fish, or any fish from which the head has been removed, or any fish from which all viscera, that is, all of the contents of the abdominal cavity, have not been previously removed; or shall have, keep or store in their cannery, or their property surrounding the same, any canned or cooked fish which, for any reason, is unsafe or unfit for human food; provided, however, that this provision shall not apply to the necessary accumulation of inedible product resulting from the ordinary methods of food preparation. (Prior code § 5550.17)

8.24.060 Dumping in harbor prohibited.

No person managing, conducting or carrying on any fish cannery in the City shall dump or place

any fish offal, oil or residue from the cooking of soup in the Long Beach harbor. (Prior code § 5550.18)

8.24.070 Refuse collection and removal.

Every person managing, conducting or carrying on any fish cannery in the City shall provide such fish cannery with metal receptacles sufficient for keeping refuse and offal produced in such cannery; shall keep such receptacles in a sanitary condition; shall not use such receptacles for any edible product; and shall not permit refuse and offal to accumulate in or about the canneries but shall remove or otherwise dispose of the same before any putrefaction commences. (Prior code § 5550.19)

8.24.080 Tobacco use prohibited.

No person shall smoke or use tobacco in any form in any fish cannery operating within the City. (Prior code § 5550.20)

8.24.090 Lavatory facilities.

Every person conducting or carrying on any fish cannery in the City shall provide the fish cannery with convenient and adequate toilet and lavatory facilities and all employees therein shall keep themselves clean. (Prior code § 5550.21)

8.24.100 Construction and equipment.

Every place or building used as a fish cannery in the City shall be of good and strong workmanship, shall be provided with adequate means to exclude flies and rodents therefrom, and all utensils, receptacles and other appliances and appurtenances shall be kept clean and in a safe and sanitary condition. (Prior code § 5550.22)

8.24.110 Inspection authorized.

The Health Officer, his deputy or other officer delegated by him, is empowered to enter any fish cannery located within the City at any time for the purpose of inspection and to enforce any of the provisions of this Chapter, or of any law, rule or regulation governing such places in the City. (Prior code § 5550.23)

8.24.120 Condemnation and removal of products.

Any fish received, kept or stored in any fish cannery or on the premises surrounding the same, within the City, or at any other place in the City, in violation of any of the provisions of this Chapter, or of any law, rule or regulation governing fish canneries in the City at the time, shall be condemned, and the Health Officer, his deputy or other officer delegated by him, shall mark or mutilate such fish so condemned and make the fact of such condemnation apparent and shall immediately, in writing, order the person in charge of the cannery, or in the possession of the fish, to remove the same from the premises within such time as may be fixed in the order, and every such person so ordered to remove condemned fish shall immediately after the removal of the same make a report in writing to the Health Officer stating the time and manner of the removal and disposal of the condemned fish. Copies of all condemnations and reports of removal shall be filed in the office of the Health Officer. (Prior code § 5550.24)

CHAPTER 8.26 INDUSTRIAL HYGIENE SERVICES

8.26.010 Purpose.

The purpose of this Chapter is to prescribe minimum sanitary, environmental and preventive public health requirements for the protection of the health of all employees and the public in establishments subject to the provisions of this Chapter. (Ord. C-5891 § 1 (part), 1982)

8.26.020 Scope.

This Chapter shall apply to all establishments in which articles are manufactured, processed, cleaned, sorted, assembled or renovated, in whole or in part, educational facilities, establishments in which the public may be present, and those establishments practicing the healing arts. (Ord. C-5891 § 1 (part), 1982)

8.26.030 Definitions.

The following words and terms as used in this Chapter shall have the meanings as indicated in this Section as follows:

A. "Adequate or approved" means in conformance with good health practices which in the opinion of the Health Officer are sufficient to protect the health and well being of the employee.

B. "Breathing zone" means the area or zone of a worker's head during normal operation of a process while at work.

C. "Capture velocity" means the velocity of air at specific points or zones which causes air contaminants to flow to an exhaust system.

D. "Conveying velocity" means the air speed determined to be necessary to convey a contaminant through a duct or system.

E. "Corrosive substance" means any substances which on contact with living tissue will cause destruction of tissue by chemical action, but does not refer to action on inanimate surfaces.

F. "Dermatitis" means inflammation of the surface of the skin or epidermis.

G. "Employee" means any person, including an owner, or partner who works in or is employed in a place of employment.

H. "Employer" means any person who directly or indirectly, or through an agent or any other person, employs or exercises control over the wages, hours, or working conditions of a man, woman or minor.

I. "Gassing" means the rate of generation of a contaminant.

J. "General ventilation" means introduction of uncontaminated air into an area, room or building or exhausting air therefrom by other than local exhaust ventilation systems.

K. "Health Officer" means the Health Officer of the City of Long Beach.

L. "Hood" means any air intake device connected to an exhaust ventilation system or duct to capture and remove dust, fumes, gases, vapors, mists, smoke, heat or otherwise provide local exhaust ventilation.

M. "Irritant" means any substance not necessarily corrosive as defined herein, but which on either immediate, prolonged or repeated contact with normal living tissue will induce a local inflammatory reaction.

N. "Lateral exhaust" means local exhaust ventilation designed with slots at the periphery or along the midsection of a surface or tank for the purpose of preventing escape of significant amounts of contaminants to the breathing zone.

O. "Local exhaust ventilation" means a ventilating system intended to capture air contaminants at or near their point of origin and transport them to an approved exhaust system.

P. "Occupational disease" as hereinafter used means any disease or infection, including dermatitis, which is peculiar to the industrial process, trade or occupation in each instance and which arises out of and in the scope of employment, and to which an employee is not ordinarily subjected or exposed other than during a period of regular actual employment therein.

Q. "An occupational health hazard" within the meaning of this Code is any risk to employee's health associated with or arising out of his occupation or occupational work or environment.

R. "Place of employment or industrial establishment" means every place where persons are employed.

S. "Sanitary condition" means that physical condition which will tend to prevent the incidence and spread of disease.

T. "Strong sensitizer" means a substance which will cause on normal living tissue through an allergic or photodynamic process, a hypersensitivity which becomes evidence on reapplication of the same substance and which is so recognized by national authority. Before designating any substance as a strong sensitizer, the department, upon consideration of the frequency of occurrence and severity of the reaction, shall find that the substance has a significant potential for causing hypersensitivity.

U. "Toilet facilities" means fixtures maintained within toilet rooms for the purpose of defecation.

V. "Toilet room" means a room maintained within or on the premises of any place of employment containing toilet facilities for use of employees, and shall be used for no other purpose.

W. "Toxic substance" means any substance other than a radioactive substance which has the capacity to produce personal injury or illness to man through ingestion, inhalation or absorption through any body surface.

X. "Urinal" means a fixture connected with a sewer, maintained within a toilet room for the sole purpose of urination.

Y. "Water closet" means a toilet facility which is connected to a sewer and flushed with water under pressure. (Ord. C-5891 § 1 (part), 1982)

8.26.040 Water supply.

The employers or other persons as provided herein shall be responsible for the following requirements relating to water supply as set forth herein:

A. It shall be the responsibility of the owner, operator or employer to provide to every place of employment at all times an adequate supply of running water under pressure for use by human beings for both drinking, face and body washing purposes. Such supply and the facilities, and the location of such facilities, must be approved by the Health Officer.

B. Ice in contact with drinking water or other beverages shall be made of potable water and maintained in a sanitary condition. All containers used for drinking water shall be of a type and of a construction approved by the Health Officer.

C. No employee shall provide or expose for common use, or permit to be so provided or exposed or allow to be used in common, any cup, glass, or other receptacle used for drinking purposes.

D. Where single-service drinking cups are supplied, there shall be provided by the owner at all times, an approved sanitary container for the unused cups and also an approved receptacle for disposing of the used cups.

E. When sanitary drinking fountains are provided in compliance with this Code, it shall be the responsibility of the employer that they shall be of the angle jet type, with guard, and in good working order at all times, and must be of a design approved by the Health Officer. When such drinking fountains are provided, at least one (1) must be provided for each fifty (50) employees, or fraction thereof.

F. No person shall fail to provide a drain from any drinking fountain or other potable water source. Said drain shall be connected to an approved drainage system as approved by the Health Officer.

G. No employer or employee shall provide an open container such as barrels, pails, or tanks for drinking water for general use, from which the water must be dipped or poured, whether fitted with a cover or not. (Ord. C-5891 § 1 (part), 1982)

8.26.050 Sanitary facilities.

The employer shall be responsible for the following requirements relating to sanitary facilities as set forth herein:

A. Separate toilet facilities shall be provided by the employer for each sex according to the following table:

Number of Employees	Minimum Number of Water Closets*
1 to 15	1
16 to 35	2
36 to 55	3
56 to 80	4
81 to 110	5
111 to 150	6
over 150	1 additional for each additional 40 employees or fraction thereof

* Urinals may be installed instead of water closets in toilet rooms to be used only by men provided that the number of water closets shall not be less than two-thirds of the minimum number of toilet facilities specified.

When there are less than five (5) employees, separate toilet rooms for each sex are not required provided toilet rooms can be locked from the inside and contain at least one (1) water closet.

B. When persons other than employees are regularly permitted the use of toilet facilities on

the premises, the number of such facilities shall be correspondingly increased in accordance with this Section.

C. Toilet facilities shall be kept clean, maintained in good working order and be accessible to the employees at all times. Where practicable, toilet facilities should be within two hundred feet (200') (sixty-one (61) meters) of locations at which workers are regularly employed and should not be more than one (1) floor-to-floor flight of stairs from working areas.

D. The requirements of this Section do not apply to mobile crews or to normally unattended work locations provided employees at these locations have immediately available transportation to nearby toilet facilities which meet the other requirements of this Section.

E. All water-carried sewage shall be disposed of by means of either a public sewage system or by a sewage disposal system in conformance with applicable state and local laws, ordinances, and regulations. The sewage disposal method shall not endanger the health of employees.

F. An adequate supply of toilet paper with holder shall be provided for every water closet.

G. Covered receptacles for sanitary napkin disposal shall be provided in all toilet rooms used by women.

H. Washing facilities shall be provided in every toilet room or be adjacent thereto. A minimum of one (1) lavatory shall be provided for every three (3) toilet facilities, or fraction thereof, required by this Section. (See Subsection 8.25.060.C for total number of required washing facilities including those associated with toilet rooms).

I. The floors, walls and ceilings of all toilet rooms shall be of a nonabsorbent material approved by the Health Officer that can be easily cleaned and maintained in good repair.

J. All outside windows of all toilet rooms shall be equipped with suitable and effective insect screens approved by the Health Officer.

K. All inside toilet rooms shall be effectively vented to the outside air by mechanical means as approved by the Health Officer.

L. Every water closet bowl shall be set entirely free and open from all enclosing woodwork, and shall be so installed that the space around the fixture may be easily cleaned. (Ord. C-5891 § 1 (part), 1982)

8.26.060 Washing facilities.

Adequate facilities for maintaining personal cleanliness shall be provided by the employer in every place of employment. Their number and proximity to the employees shall be such as to fulfill properly the requirements set forth in this Code and shall be maintained in a clean and sanitary condition at all times and in compliance with the following:

A. Washing facilities for maintaining personal cleanliness shall be provided in every place of employment. These facilities shall be reasonably accessible to all employees.

B. Washing facilities shall be maintained in good working order and in a sanitary condition.

C. Lavatories, including those associated with toilet rooms, shall be made available according to the following table:

Type of Employment	Number of Employees	Minimum Number of Lavatories
Nonindustrial-office buildings, public buildings, and similar establishments	1 to 15	1
	16 to 35	2
	36 to 60	3
	61 to 90	4
	91 to 125	5
	over 125	1 additional for each additional 45 employees fraction thereof
Industrial-factories, warehouses, loft buildings, and similar establishments	1 to 100	1 for each ten employees
	over 100	1 additional for each additional 15 employees or fraction thereof

In a multiple-use lavatory, twenty-four (24) lineal inches (sixty-one cm) of sink or eighteen (18) inches (forty-five cm) of circular basin, when provided with individual faucet, shall be considered equivalent to one (1) lavatory.

D. The requirements of Subsection C of this Section do not apply to mobile crews or to nor-

mally unattended work locations provided employees working at these locations have readily available transportation to nearby washing facilities which meet the other requirements of this paragraph.

E. Each lavatory shall be provided with running water and suitable cleansing agents. The water shall be available at temperatures of at least eighty-five degrees Fahrenheit (85°F.) in those instances where:

1. Substances regulated as carcinogens in these orders are used.

F. Clean individual hand towels, or sections thereof, of cloth or paper or warm-air blowers convenient to the lavatories shall be provided. Warm-air blowers shall provide air at not less than ninety degrees Fahrenheit (90°F.), shall have means to automatically prevent the discharge of air exceeding one hundred forty degrees Fahrenheit (140°F.), and shall have electrical components which meet the requirements of the Electrical Safety Orders of Title 8 of the California Administrative Code.

G. Receptacles shall be provided for the disposal of used towels.

H. Where showering is required:

1. Separate shower rooms shall be provided for each sex. One (1) shower facility with hot and cold water feeding a common discharge line shall be provided for each ten (10) employees, or numerical fraction thereof, who are required to shower during the same shift. When there are less than five (5) employees the same shower may be used by both sexes provided the shower room can be locked from the inside.

2. Body soap or other appropriate cleansing agents convenient to the shower shall be provided.

3. Employees who use showers shall be provided with individual clean towels.

I. Where there is exposure to skin contamination with poisonous, infectious or irritating materials, one (1) lavatory shall be provided for each five (5) persons. Where wash sinks or circular basins are used, twenty-four (24) lineal inches of wash sink or eighteen inches (18") of circular basin, when provided with water outlets for each space, shall be considered equivalent to one (1) lavatory. In all instances, a suitable cleansing agent shall be provided at each wash place.

J. Employers shall provide change rooms, showers, baths, or lavatories having hot and cold running water, soap and towels, in every place of employment where lack of such facilities may constitute an occupational health hazard and may result in an occupational disease. (Ord. C-5891 § 1 (part), 1982)

8.26.070 Lunch rooms.

A. In all places of employment where employees are permitted to lunch on the premises the employer shall provide an adequate space suitable for that purpose for the maximum number of employees who may use such space at one time. Such space shall be separate and apart from any location where there is an exposure to toxic materials.

B. The employers shall provide receptacles constructed of smooth, corrosion-resistant, easily cleanable or disposable materials which shall be used for the disposal of food. The number, size and location of such receptacles shall be adequate to prevent overfilling. Receptacles containing food waste shall be emptied not less than once each working day and shall be maintained in a clean and sanitary condition. They shall be provided with solid, tight-fitting covers and be covered at all times when containing waste food.

C. It shall be unlawful for any employer to permit any employee, or for any employee to store or eat any part of his or her lunch or other food at any time where there are present any toxic materials or other substances that may be injurious to health. (Ord. C-5891 § 1 (part), 1982)

8.26.080 Sanitation of respiratory equipment.

The employer shall provide the means for cleaning and sanitizing all respiratory equipment, and it shall be the duty of the employer to cause such equipment to be maintained in a clean and sanitary condition. Respiratory equipment shall not be passed on from one (1) person to another until

such equipment is cleaned and sanitized. When filter or cartridge type respirators are used, each employee shall have such respirator for his or her own exclusive use. Respiratory equipment and replacement units shall be stored, when not in use, in containers approved by the Health Officer. (Ord. C-5891 § 1 (part), 1982)

8.26.090 Health hazards—General.

No person, firm, corporation or employer shall use, or permit to be used, in the conduct of any business, manufacturing establishments, or other places of employment, any material or condition determined by the Health Officer to have possible adverse effects on the health of any person or persons employed therein unless arrangements have been made to maintain the environment to the extent that such injury will not result as approved by the Health Officer. (Ord. C-5891 § 1 (part), 1982)

8.26.100 Health hazards—Health Officer power to declare a material as a toxic substance.

Whenever, in the judgment of the Health Officer, such action will promote the objective of this Code by avoiding or resolving uncertainty as to their application, the Health Officer may declare any specifically named material, compound, substance or mixture thereof to be a "toxic substance". (Ord. C-5891 § 1 (part), 1982)

8.26.110 Health hazards—Inspections and orders.

The Health Officer shall make health and sanitary inspections of places of employment to determine whether any manufacturing process or procedure may have an adverse effect on the physical health of employees or members of the public. Where necessary, the Health Officer shall order the employer to take corrective action to protect the health and well being of employees and members of the public. Any person failing to comply with such an order from the Health Officer shall be guilty of a misdemeanor. (Ord. C-6326 § 1, 1986: Ord. C-5891 § 1 (part), 1982)

8.26.120 Sanitation in places of employment.

It shall be unlawful for any employer to fail to maintain any place of employment in a sanitary manner free of vermin, dirt, dusts, manufacturing debris, unusable or unused chemicals, and unsalvageable materials. Storage of such materials shall be in containers approved by the Health Officer for such use and be of adequate size and number as to eliminate improper storage conditions. Said materials are to be removed on a regular basis and of sufficient frequency as approved by the Health Officer. (Ord. C-5891 § 1 (part), 1982)

8.26.130 Lighting.

Every employer shall equip each place of employment with lighting facilities which will adequately and effectively illuminate all operations and areas. The Health Officer shall adopt those lighting standards set forth by the Society of Illuminating Engineers to the National Institute for Occupational Safety and Health (NIOSH). (Ord. C-5891 § 1 (part), 1982)

8.26.140 Liquid discharge.

No person shall discharge any liquid from any industrial process on the ground or other surface in any place of employment or on public or private property. To avoid creating a hazardous or unsanitary environmental condition for employees or members of the public, an employer shall provide proper drainage, as approved by the Health Officer, for any discharge of liquid from any industrial process. (Ord. C-6326 § 2, 1986: Ord. C-5891 § 1 (part), 1982)

8.26.150 Aisle and passageway sanitation.

Permanent aisles and passageways shall be provided by the employer and kept clean and the floor surfaces thereof shall be kept in good repair. (Ord. C-5891 § 1 (part), 1982)

8.26.160 Maintenance of equipment.

It shall be the responsibility of the employer to regularly inspect all fans, fan blades, hoods, ducts, filters and baffles and shall properly clean, main-

tain, repair or replace as often as is necessary said equipment to maintain performances of the involved systems to intended design requirements. (Ord. C-5891 § 1 (part), 1982)

8.26.170 Storage of chemicals.

It shall be unlawful for any person to store together, incompatible chemicals as determined by the Health Officer which, if combined, would produce a toxic product. (Ord. C-5891 § 1 (part), 1982)

8.26.180 Storage of unopened drums and carboys.

It shall be the responsibility of the employer to provide proper storage for all unopened drums and boxed carboys. Such materials, if stacked upright and two or more layers high, shall be staggered or with pallets between layers so as to provide stability to such stacks. (Ord. C-5891 § 1 (part), 1982)

8.26.190 Storage of opened drums and carboys.

It shall be the responsibility of the employer to see that opened drums shall be stored upright and shall not be stacked. Exception: For the purpose of dispensing, such drums may be stored on their sides not over two (2) tiers high if dispensing spigots are installed on the drums and the drums are secured in place. (Ord. C-5891 § 1 (part), 1982)

8.26.200 Stacking of opened carboys prohibited.

No person shall stack carboys which have been opened. (Ord. C-5891 § 1 (part), 1982)

8.26.210 Identification and labeling of toxic substances.

The employer should at all times store and label toxic substances in a manner approved by the Health Officer. Said materials shall be protected from sources of external corrosion or damage and maintained in containers of sound construction designed to contain the toxic substance stored therein. (Ord. C-5891 § 1 (part), 1982)

8.26.220 Review of plans.

The Health Officer may review and approve or disapprove all plans and specifications pertaining to the design of ventilation systems for all places of employment or public occupancy, for the control of environmental health hazards and shall have the authority to require the submission of such plans and specifications. The employer shall submit all plans and specifications at the request of the Health Officer and shall not use, operate, or allow any person to work with any hazardous materials until the Health Officer has approved said installation. (Ord. C-5891 § 1 (part), 1982)

8.26.230 Violations.

A. Any person violating any provision or failing to comply with any of the mandatory requirements of this Chapter shall be guilty of a misdemeanor, and any person so convicted shall be subject to such punishment as is provided in the Municipal Code of the City of Long Beach for such misdemeanor offense. Each such person shall be guilty of a separate offense for each and every day during any portion of which any violation of any provision of this Chapter is committed, continued or permitted by such person and shall be punishable accordingly.

B. All other applicable general penalty provisions of the Municipal Code shall apply to violations of this Chapter. (Ord. C-5891 § 1 (part), 1982)

8.26.240 Construction of Chapter.

In adopting this Chapter, it is not the intention of this City Council to intrude upon any area or provisions of Federal or State law that are preemptive of local legislative or regulatory authority, and to the extent that any such intrusion may be suggested, the provisions of this Chapter should be construed to be consistent with and not in conflict with such Federal and State law including but not limited to the provisions of the Occupational Safety and Health Acts. (Ord. C-5891 § 1 (part), 1982)

CHAPTER 8.27 COMMUNITY LEAD HAZARD CONTROL/ABATEMENT

8.27.010 Purpose.

The purpose of this Chapter is to require the removal of lead hazards when the Health Officer has found that a child under six (6) years of age has an elevated blood lead level as a result of such a hazard. (Ord. C-7367 § 1, 1995)

8.27.020 Scope.

This Chapter shall apply to any dwelling, dwelling unit, hotel, motel, guest room, child care facility, institution, yard, soil, or any premises or areas inhabited or frequented by children. The property owner or responsible party shall be responsible for the removal or the control of any lead hazard. The extent of the removal or the control of the lead hazard shall be determined by the City Health Officer or his/her representative and completed in accordance with approved State or Federal methods. (Ord. C-7367 § 1, 1995)

8.27.030 Definitions.

A. "Abatement" shall mean measures designed to permanently eliminate known lead hazards to a child, including, but not limited to the following:

1. The removal of lead-based paint from a building component, the replacement of a building component painted with a lead-based paint or the enclosure or encapsulation of lead-based paint.

2. Removal or covering of lead contaminated soil and dust.

3. Removal of any item found to be a lead hazard to a child.

4. All preparation, clean-up, worker protection, disposal and post abatement clearance testing activities associated with such measures.

B. "Child" means any person who is under six (6) years of age.

C. "Materials containing dangerous levels of lead-containing substances" means any soil, dust, water, food, household and cosmetic products, pottery, folk remedies, hobby items, paint, varnish, or other material which contains lead or its compounds in a quantity, when measured by any scientifically accepted method, determined by the Health Officer to constitute a lead hazard to children; or that level as determined in the most recent standards as established by the U.S. Department of Health and Human Services, U.S. Department of Housing and Urban Development, Centers for Disease Control and Prevention, the U.S. Environmental Protection Agency, or the California Department of Health Services.

D. "Elevated blood level for lead" means a confirmed blood level of twenty (20) micrograms of lead or greater per deciliter of venous blood, or two (2) consecutive confirmed blood lead levels of fifteen (15) micrograms per deciliter within three (3) months, or that level as determined in the standards as established by the United States Department of Health and Human Services, the Centers for Disease Control and Prevention, the California State Department of Health Services, or the Health Officer for the City of Long Beach.

E. "Encapsulation" means a method of abatement that involves the coating and sealing of surfaces with durable surface coatings specifically formulated to be elastic, able to withstand sharp and blunt impacts, long-lasting, and resilient, while also resistant to cracking, peeling, algae, fungus, and ultraviolet light, so as to prevent any part of lead-based paint from becoming part of house dust or otherwise accessible to children. Paint is not an encapsulant unless approved for such use by the U.S. Environmental Protection Agency or the City Health Officer.

F. "Enclosure" means a method of abatement that involves the resurfacing or covering of surfaces with durable materials such as gypsum board or paneling, and sealing or caulking the edges and joints so as to prevent or control caulking, flaking, peeling, scaling, or loose lead-based paint from becoming part of house dust or otherwise accessible to children.

G. "Interim controls" means strategies or measures to temporarily reduce a lead hazard to a child including, but not limited to specialized cleaning, paint stabilization, painting, repairs and maintenance.

H. "Lead-based paint" means any paint or other surface coating that contains lead in excess of 1.0 milligrams per square centimeter, as measured by x-ray fluorescence (XRF), or 0.5 percent (5,000 parts per million [ppm]) by weight as measured by approved laboratory analytical methods, or that level as determined in the most recent standards as established by the U.S. Environmental Protection Agency.

I. "Lead hazard control" means a range of measures through abatement or interim controls to control lead hazards to children.

J. "Lead hazards to children" shall mean the presence of a readily accessible, dangerous level of lead-containing substance on the exterior or interior of a surface, fixture, connection or appurtenance of any dwelling, dwelling unit, hotel, motel, guest room, child care facility, institution, yard, soil or any premises inhabited or frequented by children that may cause an elevated blood lead level.

K. "Readily accessible" means in a dusty, peeling, flaking, or chipped condition, or located on or in a substance or surface from which it may be chewed, ingested or inhaled by children.

L. "Replacement" means a method of abatement that removes components such as windows, doors and trim that have lead-based painted surfaces, and installs new or de-leaded components free of lead-based paint. (Ord. C-7367 § 1, 1995)

8.27.040 Inspection.

The Health Officer or his/her representative is empowered to enter any premises or area inhabited or frequented by a child with an elevated blood lead level for the purpose of inspection, sampling, and enforcement of the provisions of this Chapter, subject to any applicable requirements of law relating to such entry. (Ord. C-7367 § 1, 1995)

8.27.050 Violations.

It is declared unlawful and a misdemeanor for any person owning, leasing, occupying or having charge or possession of any premises:

A. To refuse or neglect to remove or reduce known lead hazards to a child if ordered to do so by the Health Officer or his/her representative; or

B. To damage, disturb, neglect or remove any abatement or interim control measures so as to cause a lead hazard to a child; or

C. To permit readily accessible, dangerous levels of lead-containing substances to remain on any toy, furniture, food container or utensil, household product, or the exterior or interior surfaces, soil fixtures or appurtenances of any dwelling, dwelling unit, child care facility, institution, hotel guest room, rooming house, or any premises inhabited or frequented by children; or

D. To sell, offer for sale, display for sale, hold for sale, give away, apply, maintain on any surface accessible to children, or cause to be applied any paint in excess of 0.06% lead by weight for use on interior or exterior surfaces, fixtures or appurtenances of any dwelling, dwelling unit, institution, hotel guest room, recreational facilities or equipment, furniture, cooking, eating, drinking utensils, or other household items. (Ord. C-7367 § 1, 1995)

8.27.060 Abatement procedure.

The City Health Officer or his/her representative shall commence enforcement under this Ordinance by inspecting premises inhabited or frequented by a child with an elevated blood lead level for the purpose of environmental assessment and enforcement.

A. If the inspection establishes the presence of lead-containing substances which have created a lead hazard to the child, the Health Officer or his/her agent shall issue an order to eliminate the hazard to the property owner, an agent of such owner, or the occupant of the premises.

B. The Health Officer or his/her agent may also issue interim control measures until permanent abatement measures are in place. (Ord. C-7367 § 1, 1995)

8.27.070 Abatement work plan.

A. Prior to implementation of an abatement work plan or interim control measures, property owners, their agents, or occupants of the premises must submit such plans for approval to the Health Officer or his/her representative.

B. The work plan shall include a description of the method to be used to reduce the hazard to the child; the disposal method for the lead-containing substances; the personnel performing the work; and other information requested by the Health Officer or his/her representative. (Ord. C-7367 § 1, 1995)

8.27.080 Qualifications of persons employed to perform lead hazard control or removal.

All individuals hired or employed by an owner, agent, or responsible party to perform lead-related construction, hazard control, removal, or abatement within the City must have a State of California Interim Certification, or Health Services Permanent Certification when such certification is available through the California State Department of Health Services. (Ord. C-7367 § 1, 1995)

8.27.090 Appeal—Order to control or remove hazard.

Within ten (10) days after notice by the Health Officer, his/her deputy, or other designated officer, the affected person may appeal a perceived incorrect measurement or procedure to the Director of the Department of Health and Human Services. The Director of the Department of Health and Human Services may sustain, reverse, or modify the decision of the Health Officer or his/her representative; such order may be made subject to specific conditions. (Ord. C-7367 § 1, 1995)

CHAPTER 8.28 MEAT PROCESSING*

8.28.010 Definitions.

The term "hamburger" or "hamburg steak" shall be deemed and construed to mean ground beef with or without suet added. (Prior code § 5550.1)

8.28.020 Inspection authorized.

The Health Officer is empowered to enter any place where meat, fish, game, poultry or any product thereof is stored, held, kept, exposed or offered for sale for human food, and every establishment where meat is manufactured into articles of human food or preserved, cured, canned or otherwise prepared for human food for the purpose of inspecting the same, and the stock therein contained, and whenever such meat, game, fish, poultry or the products thereof, are, upon such inspection and examination, found to be tainted, unwholesome or corrupted from any cause, or infected with any form of disease, the Health Officer shall condemn the same as unfit for human food and shall mark or mutilate the same, or make the fact of such condemnation and unfitness apparent, and shall immediately order the same, by notice in writing, to be removed from the premises within four (4) hours from the time of the service of the notice, and no person shall resist the entry and inspection by the Health Officer or fail to comply with the written notice. (Prior code § 5550.2)

8.28.030 Sales regulations.

A. No person shall hold, offer, keep or expose for sale any meat, game, fish, poultry or any article of food manufactured therefrom, that is immature, in-nutritious, emaciated, tainted, decayed, putrid, unwholesome or infected with any disease, or corrupted from any cause whatsoever.

B. No person shall sell, hold, keep, offer or expose for sale the flesh, meat or any meat food product intended for food purposes of any calf that is less than four (4) weeks old at the time it is slaughtered or weighs less than sixty-five (65) pounds after the removal of the viscera, feet and head.

C. No person shall remove, mutilate or destroy the umbilical or naval cord of any calf or remove the same from the pelt, hide or skin of any calf that is offered, held or exposed for sale, and the removal, mutilization or destruction of the same shall be considered as prima facie evidence of the immaturity of such calf.

D. No person shall sell, hold, keep, offer or expose for sale any beef, veal, mutton, pork or meat food product unless such veal, mutton, pork

***State law reference**—Provisions on meat inspection and sanitation, Health and S. C. § 111950 et seq.

or meat food product has been inspected by an agent of the Department of Agriculture of the State in accordance with the provisions of any existing law pertaining to the same, whether Federal, State or Municipal regulation, said inspection to be evidenced by a stamp bearing the words "California inspected and passed" or "U.S. inspected and passed", or by a stamp of an approved municipal meat inspection department.

E. No person shall sell, hold, keep or mingle any beef, veal, mutton, pork or meat food product thereof intended for purposes other than for human consumption, with any beef, veal, mutton, pork or meat food product intended for food purposes, in the same refrigerator, icebox, compartment, cooler, room or receptacle.

F. No person shall sell, hold, keep, offer or expose for sale any meat, fish, game, poultry or any product thereof, intended for human food, or carry, transport or convey the same in, upon, or along any street or open space unless the same is thoroughly enclosed and covered and protected from dirt, dust, flies and other insects; except, that the same may be allowed to remain uncovered and outside of a sanitary showcase or enclosure while the same is being prepared or cut up for market.

G. No person who does not have an established place of business in the City shall sell, offer or expose for sale any meats or meat food products, either fresh, smoked or processed, to any person other than wholesale meat dealers, retail meat dealers or operators of wholesale meat markets licensed to sell meat and meat food products in the City.

H. No person other than wholesale meat dealers, retail meat dealers, or operators of wholesale meat markets licensed to sell meat and meat food products in the City shall buy any meats or meat food products, either fresh, smoked or processed from any person who does not have an established place of business in the City.

I. No person shall sell, hold, keep, offer, or expose for sale, any hamburger or hamburg steak to which has been added any meat or substance other than the flesh of beef or beef suet, or to which has been added viscera, hearts, lungs, or other organs, or any preservative, coloring or any other substance, or which contains in excess of seventy percent (70%) moisture or thirty percent (30%) beef suet or fat.

J. No person owning, operating, managing or conducting any meat market, restaurant, delicatessen, butcher shop, or other food establishment, as defined in this Chapter, shall have, keep or store at such meat market, restaurant, delicatessen, butcher shop, or other food establishment, as defined in this Chapter, any beef, veal, mutton, pork or meat food product unless the same has been inspected by an agent of the Department of Agriculture of the State in accordance with the provisions of now existing laws pertaining to the same, whether Federal, State or Municipal regulations, said inspection to be evidenced by a stamp bearing the words "California inspected and passed," or "United States inspected and passed," or by a stamp of an approved municipal meat inspection department. The provisions of this Subsection shall include and apply to both wholesale and retail meat markets, restaurants, delicatessens, butcher shops or other food establishments. (Prior code § 5550.3)

8.28.040 Slaughterhouse location.

No person shall slaughter any animal or fowl except within an area properly zoned for such purpose. (Prior code § 5550.4)

8.28.050 Refrigeration plant—Inspection.

Every refrigeration plant where meat is stored shall be maintained and operated in a clean and sanitary manner and condition, and every such plant and all locker boxes, compartments and storage space therein shall be open at all time to inspection by the Department of Health. (Prior code § 5550.5)

8.28.060 Refrigeration plant—Uninspected meat—Storage.

A. Every person operating a cold storage or refrigeration plant for the storage of meat shall:

1. So handle and store uninspected meat, possession of which is authorized by law, that the same will not at any time come into physical contact with inspected meat;

2. Provide separate chilling, cutting and aging room or rooms for such uninspected meat;

3. Handle or store all such uninspected meat in rooms used for that purpose exclusively;

4. Use separate cutting and other utensils and separate cutting blocks for the butchering and cutting of inspected and uninspected meats.

B. For the purposes of this Section, the word "room" means any space in a building separated from other areas by substantial partitions reaching to the ceiling or not less than seven feet (7') high. (Prior code § 5550.6)

8.28.070 Refrigeration plant—Uninspected meat—Deposit statement contents.

No person, owning or operating a cold storage or refrigeration plant shall permit any person to store or place in said cold storage or refrigeration plant any:

A. Horse meat;

B. Any meat, unless the same has been slaughtered under the supervision of a United States Government Inspector in accordance with the regulations relating to the inspection of meats as prescribed by the Department of Agriculture of the United States, or unless the same has been slaughtered in an official establishment under the supervision of the State Veterinarian in accordance with the laws of the State regulating the inspection of animals slaughtered for human food, or under the supervision of the Health Officer or a meat inspector of the City in accordance with the provisions of this Chapter, without first procuring from the person storing said meat a written statement in triplicate setting forth:

1. The name and address of the person storing said uninspected meat,

2. The date of such storage,

3. That the person storing the same is the owner thereof,

4. A description of the slaughtered animal or animals (e.g., cattle, sheep, swine, etc.),

5. The quantity by weight of the meats so stored,

6. By whom slaughtered,

7. Where slaughtered,

8. The date the meat to be stored was obtained by the person storing same,

9. Whether the person storing the meat was the owner of the animal at the time it was slaughtered,

10. If not the owner of the meat at the time of slaughter, from whom it was obtained:

a. The address of the person from whom obtained;

b. Whether meat was purchased by the person storing same. (Prior code § 5550.7)

8.28.080 Refrigeration plant—Uninspected meat—Deposit statement filing.

The owner or operator of such cold storage or refrigeration plant shall forthwith file one (1) copy of the statement provided for in the preceding section with the Health Department, one (1) copy shall be forwarded forthwith to the Division of Livestock Identification of the Department of Agriculture of the State, and one (1) copy shall be retained in the files of the cold storage or refrigeration plant. (Prior code § 5550.8)

8.28.090 Refrigeration plant—Uninspected meat—Withdrawal from storage.

A. No person, other than the owner thereof, shall remove any uninspected meat from any cold storage or refrigeration plant.

B. No owner or operator of a cold storage or refrigeration plant shall permit or allow anyone but the owner of uninspected meat to remove the same from the cold storage or refrigeration plant.

C. It shall not be a violation of the provisions of this Section, however, if uninspected meat stored in privately rented locker boxes is withdrawn in quantities not to exceed ten (10) pounds in any one (1) day by a member of the immediate family or household of the owner; provided, that the person so withdrawing the meat signs a certificate that the uninspected meat so withdrawn is for the personal use of the family or household of the owner. (Prior code § 5550.9)

8.28.100 Refrigeration plant—Uninspected meat—Withdrawal statement.

A. No person owning or operating a cold storage or refrigeration plant shall permit any

person to withdraw any uninspected meat from the plant without first procuring from such person a written statement setting forth:

1. The name and address of the person withdrawing such uninspected meat;

2. The date of such withdrawal;

3. That the person withdrawing the same is the owner thereof, or a member of such owner's immediate family or household;

4. The quantity, by weight, of meat being withdrawn;

5. If withdrawn by a member of the owner's immediate family or household, that the same is for the personal use of the family or household of the owner.

B. Such statement shall be attached to and filed with the statement of deposit of the uninspected meat required by this Chapter to be retained in the office of the cold storage or refrigeration plant. (Prior code § 5550.10)

8.28.110 Boiling offal, tallow or lard.

No person shall boil offal, tallow, lard or any portion of an animal, except fresh from the animal and not decayed or putrid. (Prior code § 5550.11)

CHAPTER 8.32 MEAT SALES INITIATIVE ORDINANCE

8.32.010 Initiative set out.

The following initiative ordinance was approved by the qualified electors of this City at an election held on the fourth day of May, 1937, as required by Ordinance No. C-1491. The placing of this initiative ordinance in this municipal code shall not be construed as altering, amending, or repealing the ordinance. Any violation of the provisions of the initiative ordinance shall not be deemed to be a violation of any of the provisions of this municipal code, but shall be deemed to be a violation of the initiative ordinance and punishable as provided in the initiative ordinance.

An ordinance amending Section 27 of Ordinance No. 35 (new series); repealing Section 1 of Ordinance No. 711 (new series), Ordinances of the City of Long Beach, and repealing all other ordinances and parts of ordinances in conflict herewith.

The City Council of the City of Long Beach ordains as follows:

SECTION 1—Definitions—The following terms used in this ordinance, shall have the significance attached to them in this Section unless otherwise clearly apparent from the context:

(a) Inspector—The term "Inspector" shall be deemed and considered to mean and include the Health Officer of the City of Long Beach and any of his subordinates by him detailed as meat inspectors of the Health Department; provided, however, that any inspector, except the Health Officer himself, must be approved by the Health Department of the State of California or other appropriate State Department and must fully qualify himself under the Civil Service regulations of the City of Long Beach.

(b) Meat—The term "Meat" shall be deemed and construed to mean and include all animal flesh, carcasses and parts thereof, and meat food products as defined by the California Meat Inspection Regulation, designed and intended for human consumption or sold and disposed of as human food, including fish, game and rabbits.

(c) Person—The word "Person" shall mean and include both the singular and plural and shall also mean and include all natural persons, firms, associations, clubs, co-partnerships, corporations and all associations or combination of persons, whether acting by themselves or by a servant, agent or employee.

(d) Sale Etc.—The terms "Sale," "Sell," "Offer to Sell" or "Offer for Sale" shall include every contract of sale or disposition of, attempt or offer to dispose of, or solicitation of an offer to buy.

(e) Wholesale Meat Dealer—The phrase "Wholesale Meat Dealer" shall be deemed and construed to mean and include any person, other than the owner and holder of a wholesale meat market license, who sells or disposes of meats and meat food products at wholesale, to customers for the purpose of resale at retail or wholesale or the preparation, cooking or processing thereof for human consumption.

(f) Wholesale Meat Market—The phrase "Wholesale Meat Market" shall be deemed and construed to mean and include all premises, buildings, and/or parts thereof used for the preparation and display for sale, or for the sale or disposal of meats and meat food products, at wholesale, to customers for resale, or to restaurants, cafes and others for curing, processing, cooking or otherwise preparing for food. The conduct of a wholesale meat market shall include deliveries therefrom of orders previously received.

Sec. 3—It shall be unlawful to apply, affix, or attach to any meats or meat food products, any mark, tag, stamp, or insignia indicating the grade or quality of the meats or meat food products that the same are inspected meats or meat food products within the meaning of this ordinance unless the same has actually been inspected and the stamp affixed thereto by proper authority.

It shall be unlawful for any person to advertise, offer for sale, or cause or knowingly permit the advertising, offering for sale or selling of any meat, except shanks, offal, heads, plucks and wild game other than by weight, determined on a scale by weight or beam, properly sealed by the Department of Weights and Measures.

Sec. 5—Section 1 of Ordinance No. 711 (new series), ordinances of the City of Long Beach, and all other ordinances and parts of ordinances in conflict herewith, are hereby repealed.

Sec. 6—If any section, sub-section, sentence, clause or phrase of this ordinance is for any reason held to be invalid or unconstitutional, such decision shall not affect the validity of the remaining portions of the ordinance. The City Council of the City of Long Beach hereby declares that it would have passed this ordinance, and each section, subsection, sentence, clause and phrase thereof irrespective of the fact that any one (1) or more other sections, sub-sections, sentences, clauses or phrases be declared invalid or unconstitutional.

Sec. 7—Every person violating any of the provisions of this ordinance or doing any act or thing herein declared to be unlawful shall be deemed guilty of a misdemeanor, and upon conviction thereof, shall be punished by a fine of not less than fifty dollars ($50.00), nor more than two hundred dollars ($200.00), or by imprisonment in the City Prison for not more than six (6) months, or by both such fine and imprisonment.

Sec. 8—The City Clerk shall certify to the passage of this ordinance by the City Council of the City of Long Beach and cause the same to be posted in three (3) conspicuous places in the City of Long Beach, and it shall take effect thirty (30) days after its final passage.

Note: Section 2, including Subsection (h) thereof, of Ordinance 35 (N. S.), as amended by initiative ordinance adopted on May 4, 1937, pursuant to Ordinance No. C-1491, was repealed by the people at an election held on June 5, 1951, pursuant to Ordinance No. C-3037. The initiative ordinance did not contain a Section 4 at the time of its adoption. (Prior code § 5550)

CHAPTER 8.36 MILK AND MILK PRODUCTS

8.36.010 Definitions.

All words, terms, and phrases used in this Chapter, except "Health Officer," shall be construed as defined in the Agricultural Code of the

State, unless from the particular context it clearly appears that some other meaning is intended. (Prior code § 5140.4)

8.36.020 Permit—Milk.

No person shall engage in the business of producing or processing of any grade of market milk to be sold in the City or sell any grade of market milk in the City without applying for and obtaining an annual permit so to do from the Health Officer for each separate dairy, milk plant or place of business. (Prior code § 5140.5)

8.36.030 Permit—Milk products.

No person shall engage in the business of producing, processing or manufacturing any ice cream, ice milk, ice cream mix, ice milk mix, buttermilk, or cottage cheese to be sold in the City or sell any ice cream, ice milk, ice cream mix, ice milk mix, buttermilk, or cottage cheese in the City without applying for and obtaining an annual permit so to do from the Health Officer for each separate dairy or plant where such products are produced, processed, or manufactured. (Prior code § 5140.6)

8.36.040 Permit—Applicant investigation.

Upon receipt of an application for any permit issued under the terms of this Chapter, the Health Officer shall cause an investigation to be made of the dairy, milk plant, or place of business where market milk or milk products are produced, processed, manufactured, sold or distributed; and in the case of a dairy, of the herd producing the milk. (Prior code § 5140.7)

8.36.050 Permit—Suspension, revocation or expiration.

If the provisions of the State Agricultural Code regulating the production, processing, manufacturing, and standards of market milk or milk products, and the regulations pertaining thereto, and the provisions of this Chapter are complied with, the permit shall be issued by the Health Officer; provided, however, that the permit shall be granted only on the expressed condition that the same shall be subject to revocation or suspension for a period not to exceed six (6) months upon proof to the satisfaction of the Health Officer of any violation by the holder thereof or his servants, employees, or agent of any of the provisions of the State Agricultural Code or regulations pertaining thereto, regulating the production, processing, or standards of market milk or milk products or of any provision of this Chapter. Each permit issued under the terms of this Chapter shall expire at the end of the calendar year in which it is issued unless the same has been revoked or suspended as provided by this Chapter. (Prior code § 5140.8)

8.36.060 Permit—Suspension or revocation notice.

No permit shall be suspended or revoked until after a hearing has been held by the Health Officer. Notice of the hearing shall be given in writing and served at least five (5) days prior to the date of hearing, upon the holder of the permit or upon his manager or agent. The notice shall state the grounds of complaint against the holder of the permit and shall also state the time when, and the place where, the hearing will be held. The notice shall be served upon the holder of the permit by delivering the same to said person or to his manager or agent; if such person has no place of business, then at his place of residence. If the holder of the permit cannot be found and service of the notice cannot be made upon him or his manager or agent, then a copy of the notice shall be mailed postpaid and registered, to the last known address of the holder of the permit; provided, however, when deemed necessary for the preservation of public health, the Health Officer is empowered to temporarily suspend the sale of milk or milk products immediately when the emergency arises, without the necessity of holding a hearing. (Prior code § 5140.9)

8.36.070 Change of ownership or location.

A. Any person who purchases any such business for which a permit has been obtained and is in force at the time of such sale may conduct and operate such business under such permit for a period of not to exceed thirty (30) days from and after the date of such sale, unless such permit is

revoked or suspended as provided in this Chapter, and such purchaser shall, during the period of said thirty (30) days, apply for and obtain a permit in the manner provided by this Chapter; and provided further, that if any holder of any such permit changes or removes the location of his place of business, such holder may continue to conduct and operate such business under such permit for a period of not to exceed thirty (30) days from and after the date of such change or removal unless such permit is revoked or suspended as provided in this Chapter, and such holder shall, during the said period of thirty (30) days, apply for and obtain a permit in the manner provided by this Chapter.

B. If such new permit is not applied for and obtained in the manner and within the time prescribed in this Section, such person shall be deemed to be conducting and operating such business without a permit from and after the expiration of such period of thirty (30) days. (Prior code § 5140.10)

8.36.080 Tuberculin testing of cows required.

No person shall sell any milk or milk products of any kind intended or prepared for human consumption unless such milk or the milk used in any such milk products has been produced from nonreacting tuberculin tested cows. (Prior code § 5140.11)

8.36.090 Milk fats and solids required.

No person shall sell in the City any grade of market milk containing less than three point five percent (3.5%) milk fat, eight point five percent (8.5%) solids not fat. (Prior code § 5140.12)

8.36.100 Raw milk bottling.

No person shall sell any grade of raw market milk not bottled on-premises where produced. (Prior code § 5140.13)

8.36.110 Acceptance of other inspection services.

The Health Officer may at his discretion, in lieu of personal inspection, examinations and tests, accept the physical examinations of milk handlers, inspections covering tuberculin tests of dairy cattle or goats, physical examinations of dairy cattle or goats, laboratory tests or examinations for the determination of disease of dairy cattle or goats, laboratory examinations of milk and milk product or dairy products, sanitary inspection of dairies, milk plants, or water ices manufacturing plants, when made or conducted by representatives of the State Department of Agriculture, or inspector of an approved milk inspection service of such animals, products, and places that may be situated in or whose products are sold in another approved inspection area. In such cases, the Health Officer may require an interexchange of records and reports and shall when notified in writing by the Health Officer if another approved inspection service refuses admission into the City any milk and milk products that do not conform to the provisions of the State Agricultural Code, or when such milk and milk products have been degraded or excluded by another approved inspection service for violation of any provisions of the State Agricultural Code. (Prior code § 5140.14)

8.36.120 Milk delivery hours.

A. No person shall deliver dairy products to any residence, dwelling, living quarters, or business in the City except between the hours of five a.m. and six p.m. of any day.

B. The provisions of this Section shall not be deemed to apply to the following:

1. Delivery of milk to any plant or place of business for bottling, processing, or pasteurizing;

2. Delivery of milk to a central depot or other place for distribution;

3. Delivery to any governmental agency. (Prior code § 5140.15)

CHAPTER 8.40 MOBILE FOOD FACILITIES*

The City hereby incorporates by reference the provisions of the California Health and Safety Code, (California Health and Safety Code, § 113700 et seq.) The City's Health Department shall have

***Editor's note**—ORD-26-0011 § 2(Exh. B), adopted May 5, 2026, repealed the former Ch. 8.40, §§ 8.40.010—8.40.130, and enacted a

responsibility for ensuring that all mobile food facilities operating in the City comply with the provisions of the above referenced code. Mobile food facilities that are vehicles shall additionally comply with the applicable requirements in the California Vehicle Code and obtain an insignia from the California Department of Housing and Community Development. In the case of any conflicts between this chapter and state law, the state law provision shall control.

8.40.010 Construction.

Mobile Food Facilities, as defined in the California Health and Safety Code, including but not limited to catering trucks, ice cream trucks, produce trucks, pushcarts, and other similar mobile food units, shall submit plans and specifications for review and approval by the Department of Health and Human Services prior to construction, modification, or operation.

Plans shall demonstrate compliance with all applicable provisions of the State Code including requirements related to food preparation, equipment, sanitation, warewashing, potable water supply, wastewater disposal, commissary use, and safe food handling practices.

The permitting, licensing and operation of a Mobile Food Facility shall not commence until plan approval has been granted and a valid health permit has been issued by the Department of Health and Human Services. (ORD-26-0011 § 2(Exh. B), 2026)

8.40.020 Inspection days.

All food facilities having a Health Department Permit to operate within the City shall report to the Department of Health and Human Services - Environmental Health Bureau by appointment twice each year during the second or third Tuesday of the month of February and August for the purpose of routine inspection. In the event of either day being a legal holiday, the next following day is designated. Failure to appear for inspection as described in this Section shall be deemed a violation of this Chapter and may be cause for revocation of permit to operate. (ORD-26-0011 § 2(Exh. B), 2026)

new Ch. 8.40 as set out herein. The former Ch. 8.40 was entitled "Mobile Food Vending Vehicles," and derived from Prior code §§ 5510.22, 5510.24—5510.35.

Cross reference—Provisions on licensing, see Chapter 8.44 of this Code.

State law reference—Provisions on mobile food units, Health and S. C. division 104, part 7, chapter 4.

CHAPTER 8.44 FOOD FACILITIES*

8.44.010 Definitions.

A. "Dealer" means and includes any person who sells or offers for sale, dispenses or delivers food at wholesale or retail, whether from a fixed place of business or otherwise, and includes the owner, agent, employee and servant.

B. "Food" means a raw, cooked, or processed edible substance, ice, beverage, an ingredient used or intended for use or for sale in whole or in part for human consumption, and chewing gum.

C. "Food handler" as defined in the California Health and Safety Code.

D. "Food Facility" as defined in the California Health and Safety Code.

E. "Mobile Food Facility" means any vehicle used in conjunction with a commissary or other permanent food facility which food is sold or distributed at retail, as defined by the California Health and Safety Code. For the purpose of the Mobile Food Facility ordinance and subsequent revisions, if any, Mobile Food Facilities are distinct from non-motorized sidewalk vending, which is regulated by the California Safe Sidewalk Vending Act (SB 946) and the City's Sidewalk Vending Ordinance (LBMC Chapter 5.73). (ORD-26-0011 § 3(Exh. C), 2026)

8.44.020 Compliance required.

No person shall operate, maintain, or conduct any temporary or permanent food facility, mobile food facility, or food operation without first com-

***Editor's note—**ORD-26-0011 § 3(Exh. C), adopted May 5, 2026, repealed the former Ch. 8.44 §§ 8.44.010—8.44.230, and enacted a new Ch. 8.44 as set out herein. The former Ch. 8.44 pertained to similar subject matter and derived from ORD-24-0002 §§ 9—12, 2024; ORD-11-0030 § 3, 2011; Ord. C-6056 §§ 1, 2, 1984; and Prior code §§ 5510—5510.21, 5520.3, and 5520.4.

plying with the requirements of this Chapter and applicable provisions of the California Health and Safety Code. (ORD-26-0011 § 3(Exh. C), 2026)

8.44.030 License and Permit—Applicant investigation.

A. No license or permit to operate any food facility or food operation in the City shall be issued or renewed or transferred by the Tax Collector unless such food facility or operation is first inspected by the Health Officer or designee.

B. Upon application being made to the Tax Collector for a license to operate a food facility or operation, or a renewal of either such license, the tax collector shall refer the application to the Department of Health and Human Services. The Health Officer or designee shall make or cause to be made an investigation of such applicant and the place where and the manner in which such food facility or operation is being operated and conducted. If the Health Officer or designee determines that the applicant conforms to the provisions of this Chapter and to the other provisions of this Code, and to all applicable State laws and statutes he shall authorize the Tax Collector to issue or renew the license, and the tax collector shall issue, renew or transfer such license; otherwise, the Health Officer or designee shall deny the application and the Tax Collector shall not issue, renew or transfer the license. The Health Officer or designee shall make his recommendation to the Tax Collector within ten (10) days after the filing of the application with the Tax Collector. (ORD-26-0011 § 3(Exh. C), 2026)

8.44.040 License and permit - required.

No person shall engage in, offer, hold, or carryon the business of any type of Food Facility or Food Operation in the City without first having obtained a health permit as provided in this Chapter and the California Health and Safety Code. Any food facility proposing to remodel, make structural or operational changes, change its menu in a way that affects food preparation, or reopen after being out of business for more than six (6) months must submit plans to the Health Officer or designee for review and approval prior to beginning any work or resuming operations. These plans must include detailed information about the proposed modifications, equipment, layout, and food preparation processes to ensure compliance with all applicable health and safety regulations. Approval from the Health Officer or designee must be obtained before construction, remodeling, or operational changes take place. (ORD-26-0011 § 3(Exh. C), 2026)

8.44.050 License and permit - application contents.

Every person desiring to carry on or conduct the business of any food facility or food operation in the City shall make a written application to, and upon forms furnished by, the Health Officer or designee. Such application shall be verified and state the name and address of the applicant, the address at which the business is proposed to be carried on, a brief description of the nature of the business, products to be prepared or sold, equipment, method of operations, name under which, driver's license number, phone number and email. (ORD-26-0011 § 3(Exh. C), 2026)

8.44.060 Permit—Issuance.

The Health Officer or designee shall make or cause to be made an investigation of the applicant and the proposed place of business or Mobile Food Facility and the manner in which the food facility or Mobile Food Facility is to be conducted, and if they find that all provisions of the California Health and Safety Code have been complied with, they shall issue the permit; otherwise, the application for permit shall be denied. Such permits shall be good for one (1) year from date of issuance and shall be annually renewed in the same manner as that provided for the securing of a new permit. Such permits shall be nontransferable and nonassignable. (ORD-26-0011 § 3(Exh. C), 2026)

8.44.061 Inspection.

A. The Health Officer or designee shall periodically conduct inspections of all places in the

City where food is given away, prepared, stored, or sold to determine whether they comply with the requirements of this Chapter and other applicable laws or whether the activities on the premises constitute a public health hazard.

B. A food facility may be found to be a public health hazard where it is maintained in an unhealthful, unsafe or unsanitary condition. An unhealthful, unsafe or unsanitary condition exists where the location has faulty plumbing or any other condition resulting in sewage or wastewater discharge into any area not designed and intended to carry or hold such sewage or wastewater discharge; no hot water, no water; infestation by rodents, vermin or vectors; no means of sanitizing multi-use utensils; filthy premises or related or similar conditions. (ORD-26-0011 § 3(Exh. C), 2026)

8.44.062 Emergency closure.

A. The City Health Officer or designee hereby finds and determines that any food facility which constitutes a public health hazard as defined in Section 8.44.061 is a public nuisance which should be abated.

B. If the City Health Officer or designee finds a food facility or food operation to constitute a public health hazard, the City Health Officer or designee shall order permit suspension and the business shall close and discontinue all operations immediately until the conditions creating a public health hazard have been cured and health permit is reinstated. (ORD-26-0011 § 3(Exh. C), 2026)

8.44.070 License and permit display.

All Mobile Food Facilities shall prominently display a valid city health permit and any required business license in a location that is clearly visible to the public at all times during operation. The permit and license shall be maintained in good condition and shall be presented upon request to any authorized enforcement officer or regulatory official. (ORD-26-0011 § 3(Exh. C), 2026)

8.44.080 Permit—Suspension and Revocation—Hearing.

Whenever the Health Officer or designee determines from examination or inspection of any food facility or food operation Mobile Food Facility that the holder of any permit issued under the provisions of this Chapter has violated any of the provisions of this Code, California Health and Safety Code or any of the laws of the State regarding food facilities or food operation or the sale, preparation or distribution of food, they may serve a written notice upon the permittee to appear before the Health Officer or designee to show cause why the permit shall not be suspended. Such notice shall contain a brief statement of the alleged violation, and the time and place of hearing, which shall be held within ten (10) days after the receipt of notice. The permittee may appear in person or with counsel and present such evidence as he may desire regarding the alleged violation and show cause why the permit shall not be suspended or revoked. The Health Officer or designee shall receive such information, evidence and testimony as may concern the circumstances of the alleged violation, and the formal rules of evidence shall not apply. If the Health Officer or designee determines that any of the provisions of this Chapter or any other provisions of the California Health and Safety Code regarding food facilities or food operation are being violated, the health permit may temporarily be suspended, provided any such suspension period shall not exceed ninety (90) days. Reinstatement of suspended license shall not be affected unless the act, default or omission which was the grounds for suspension has been remedied prior to the time of reinstatement. (ORD-26-0011 § 3(Exh. C), 2026)

8.44.090 Permit—Revocation—Reapplication.

Whenever any permit has been revoked under the terms of this Chapter, no other application for a permit to carry on a similar business by the permit holder shall be considered for a period of one (1) year from the date of such revocation. (ORD-26-0011 § 3(Exh. C), 2026)

8.44.100 Menu with prices required.

No person shall conduct any hotel, restaurant, cafe or other place where food is sold, served

or offered for sale or service, to the public, upon orders therefor, without having displayed thereat a menu, bill of fare or other device, showing to the patrons thereof, the time of ordering food, the price of each kind of food and each combination of foods offered for sale or service thereat. (ORD-26-0011 § 3(Exh. C), 2026)

8.44.110 Cafeteria—Price tags required.

No person shall conduct any cafeteria, or other place where food is sold, served or offered for sale or service to and in view of the public, without having conspicuously displayed immediately adjacent to each kind of such food and each combination of foods a card, tag or other device showing to the patrons thereof, at the time of ordering food, the price thereof. (ORD-26-0011 § 3(Exh. C), 2026)

8.44.120 Communicable disease prohibited.

No operator, employee, or licensee shall operate, work in, or be employed in any Food Facility if, in the opinion of the Health Officer or designee, the individual is affected with, or is a carrier of, any communicable or infectious disease that may be transmitted through food or food contact.

Any person exhibiting symptoms of illness, including but not limited to vomiting, diarrhea, fever, jaundice, sore throat with fever, infected wounds, or other conditions that may contaminate food, equipment, or utensils, shall be excluded from food preparation, food handling, and service activities until such condition has resolved or the individual has been medically cleared as determined by the Health Officer.

All operators and employees shall comply with the applicable employee health and hygiene requirements of the California Health and Safety Code, Division 104, Part 7 and shall immediately report any such illness or condition to the permit holder or person in charge.

The Health Officer may require medical clearance or take other necessary actions to protect public health. (ORD-26-0011 § 3(Exh. C), 2026)

CHAPTER 8.45 FOOD FACILITY*

8.45.010 Food facility inspection report.

"Food facility inspection report" means the written notice prepared and issued by the City, Department of Health and Human Services, after conducting an inspection of a food facility or food operation to determine compliance with all applicable Federal, State and local statutes, orders, ordinances, quarantines, rules, regulations or directives relating to the public health. (ORD-26-0011 § 3(Exh. D), 2026)

8.45.020 Inspection summary report.

"Inspection summary report" means a report that shall be posted by the Health Officer or designee at a food facility upon completion of a routine inspection that indicates a summary of the findings contained in the food facility inspection report as determined by the Health Officer or designee. Nothing in this provision shall prohibit the Health Officer or designee from immediately closing any food facility if, in his or her discretion, immediate closure is necessary to protect the public health. (ORD-26-0011 § 3(Exh. D), 2026)

8.45.030 Notice of closure.

"Notice of closure" means a notice that may be posted by the Health Officer or designee at a food facility upon suspension or revocation of the establishment's public health permit and that results in the immediate closure of the facility and the discontinuance of all operations of the food facility, by order of the Health Officer or designee because of violations of applicable Federal, State and local statutes, orders, ordinances, quarantines, rules, regulations, or directives relating to the public health. (ORD-26-0011 § 3(Exh. D), 2026)

8.45.040 Routine inspection.

"Routine inspection" means a periodic, unannounced inspection of any food facility to deter-

***Editor's note**—ORD-26-0011 § 3(Exh. D), adopted May 5, 2026, repealed the former Ch. 8.45 §§ 8.45.010—8.45.110, and enacted a new Ch. 8.45 as set out herein. The former Ch. 8.45 pertained to similar subject matter and derived from Ord. C-7581 § 1, 1998.

mine compliance with all applicable Federal, State and local statutes, orders, ordinances, quarantines, rules, regulations, or directives relating to the public health. A routine inspection shall not mean an inspection conducted by the Health Officer or designee to determine compliance with a previously issued food facility inspection report or any interim inspection conducted to determine compliance with specific regulations or legal requirements. (ORD-26-0011 § 3(Exh. D), 2026)

8.45.050 Posting requirements—Penalty for noncompliance—Documents available for public review.

A. Upon issuance by the Health Officer or designee, the Health Officer or designee shall post at every food facility the inspection summary report, as determined by the Health Officer or designee, so as to be conspicuous to the general public and to patrons entering or using the food facility. "Conspicuous to the general public and to patrons" shall mean:

1. Posted on the front door or in the front window of the facility within five feet (5') of the front door;

2. Posted in a display case mounted on the outside front wall of the facility within five feet (5') of the front door; or

3. Posted in a location as directed and determined in the discretion of the Health Officer or designee to ensure proper notice to the general public and to patrons.

B. In the event that a food facility is operated in the same building or space as a separately licensed or permitted business, or in the event that a food facility shares a common patron entrance with such a separately licensed or permitted business, or in the event of both, the Health Officer or designee shall post the inspection summary report, in the initial patron contact area, or in a location as determined in the discretion of the Health Officer or designee.

C. The inspection summary report shall not be defaced, marred, camouflaged, hidden or removed. It shall be unlawful to operate a food facility unless the inspection summary report is in place as set forth in this Section. Removal of the inspection summary report is a violation of this Chapter and may result in the suspension or revocation of the public health permit and may be punishable as specified in Section 8.45.100.

D. The food facility inspection report upon which the inspection summary report is based and all subsequent reports issued by the Health Officer or designee shall be maintained at the food facility and shall be available to the general public and to patrons for review upon request. The food facility shall keep the food facility inspection report and all subsequent reports until such time as the Health Officer or designee completes the next routine inspection of the facility and issues a new food facility inspection report. (ORD-26-0011 § 3(Exh. D), 2026)

8.45.060 Inspection summary report—Period of validity.

The inspection summary report shall remain valid and posted until the Health Officer or designee completes the next routine inspection of the food facility. (ORD-26-0011 § 3(Exh. D), 2026)

8.45.070 Public health permit suspension or revocation—Notice of closure.

A. Upon issuance of a written notice of suspension or revocation of the public health permit by the Health Officer or designee, the Health Officer or designee shall post a notice of closure at the food facility so as to be clearly visible to the general public and to patrons.

B. Upon issuance of the written notice of suspension or revocation of the public health permit by the Health Officer or designee, the food facility shall immediately close to the general public and to patrons and shall discontinue all operations until the public health permit has been reissued or reinstated by order of the Health Officer or designee or until the facility no longer operates as a food facility.

C. The notice of closure shall remain posted until removed by the Health Officer or designee. Removal of the notice of closure by any person other than the Health Officer or designee or the

refusal of a food facility to close upon issuance of the written notice of suspension of the public health permit is a violation of this Chapter and may result in the suspension or revocation of the food facility's public health permit and may be punishable as specified in Section 8.45.100. (ORD-26-0011 § 3(Exh. D), 2026)

8.45.080 Violation.

Notwithstanding any other provision of this Chapter, violation of this Chapter is punishable by a fine of not more than five hundred dollars ($500.00) or by imprisonment in the County jail for not more than six (6) months, or both. Each day during any portion of which any violation of any provision of this Chapter is committed, continued or permitted makes such violation a separate offense. (ORD-26-0011 § 3(Exh. D), 2026)

8.45.090 Severability.

If any provision of this Chapter or the application thereof to any person or circumstance is held invalid, the remainder of the chapter and the application of such provision to other persons or circumstances shall not be affected thereby. (ORD-26-0011 § 3(Exh. D), 2026)

CHAPTER 8.46 DISPOSAL OF FATS, OILS AND GREASE

8.46.010 Definitions.

A. "Best management practices" means activities, prohibitions or practices, maintenance procedures, and other management practices as determined by the Long Beach Water Department to prevent or reduce the discharge of fats, oils and grease in the public sewer and storm drain systems.

B. "Enforcement official" means the persons designated in Section 8.46.060.

C. "Fats, oils and grease" (sometimes referred to in this Chapter as simply "grease") means organic polar compounds derived from animal or plant sources, containing multiple carbon chain triglyceride molecules, detectable and measurable using analytical test procedures established in section 136 of title 40 of the Code of Federal Regulations, in effect at the time of enactment hereof and as hereafter amended or replaced.

D. "Food facility" shall have the same meaning defined in Subsection 8.45.010.B of this Code and, in addition, includes grocery markets and restaurants as defined in Section 8.44.010 of this Code.

E. "Grease interceptor" means a large underground tank installed outside a food facility and connected to the outgoing sewer drainage system of the food facility, and designed for removing and preventing fats, oils and grease from entering the public sewer collection system.

F. "Grease trap" means a device connected directly to the outgoing drains of sinks inside a food facility near the areas of food preparation and intended for separating the fats, oil and grease from wastewater before the fats, oils and grease enter the public sewer collection system.

G. "Wastewater" means water after it has been used in homes, businesses, landscaping or agriculture (such as plots where food is grown) that contains enough harmful material to damage the water's quality. Wastewater also includes domestic-sewage and industrial waste from manufacturing sources. (Ord. 05 0003 § 1, 2005)

8.46.020 Public nuisance and public health hazard.

In addition to being a misdemeanor as stated in Section 1.32.010 of this Code, any condition caused or permitted to exist in violation of this Chapter may be declared a public nuisance after a hearing held in accordance with this Chapter and may constitute a public health hazard subject to Sections 8.44.061 and 8.44.062 of this Code. (Ord. 05 0003 § 1, 2005)

8.46.030 Requirements for food facilities.

Any food facility that discharges wastewater into the public sewer collection system shall comply with the following requirements:

A. The owners and employees of a food facility shall be able to and, when requested by a

representative of the City, shall demonstrate that the food facility complies with best management practices for handling fats, oils and grease.

B. A food facility shall have one (1) or more drums or containers for the recycling and disposal of fats, oils and grease. Drums and containers used for storage of fats, oils and grease shall be leakproof and shall be secured with close fitting lids. The owner or operator of a food facility shall keep the drums and containers in a location on the site of the food facility so that there is no possibility of an accidental or deliberate spilling of fats, oils or grease onto a public right-of-way. The drums and containers shall be removed for recycling as frequently as necessary to avoid an unsafe, hazardous, or untidy condition or an impediment to passage. The owner, operator and employees of a food facility shall remove fats, oils and grease that have spilled, including, but not limited to, grease generated by washing hoods, floors and mats, and shall immediately clean the area where the spill occurred.

C. Prior to or at the time that the owner or operator of a new food facility applies for a business license or a building permit from the City's Department of Planning and Building, the owner or operator shall submit to the Long Beach Water Department plans describing the manner in which the owner or operator will comply with this Chapter, particularly with respect to the grease interceptor. Prior to or at the time that the owner or operator of an existing food facility applies for a building permit from the City's Department of Planning and Building for modifications to the plumbing system at that existing food facility which modifications have an estimated cost of twenty thousand dollars ($20,000.00) or more, the owner or operator shall submit to the Long Beach Water Department plans describing the manner in which the owner or operator will comply with this Chap-

[The next page is CD8:51]

ter, particularly with respect to the grease interceptor. Any time there is a change in ownership of an existing food facility or a change in the operation of an existing food facility, the new owner (if there is a change in ownership) or the current owner or operator (if there is a change in the operation) shall submit to the Long Beach Water Department plans describing the manner in which the owner will comply with this Chapter, particularly with respect to the grease interceptor.

Food facilities subject to this Subsection may apply for a variance from the requirements relating to a grease interceptor. If the enforcement official determines that the installation of a grease interceptor would not be feasible due to limitations on space or other relevant factors, a variance will be granted. The burden is on the food facility to demonstrate that the installation of a grease interceptor is not feasible.

D. The Long Beach Water Department may authorize the installation of a grease trap or other alternative pretreatment technology where the installation of a grease interceptor is not feasible provided that the owner has obtained the prior written approval of the Long Beach Water Department for the type and size of alternative pretreatment technology to be installed by the owner. Alternate pretreatment technology includes, but is not limited to, devices used to trap, separate and store grease from wastewater to prevent it from discharge into the public sewer collection system.

E. The owner or operator of a food facility shall keep a written record of the maintenance, repair and cleaning of grease traps and grease interceptors for a period of one (1) year, beginning on the date a new business is open to the public or, in the case of a modification to the food facility which requires a building permit, on the date of final inspection as shown on the building permit (a copy of which shall be delivered to the Long Beach Water Department). This record shall contain documentation (including, but not limited to, receipts) showing the times, dates, nature of the maintenance, repair and cleaning, quantities of fats, oils and grease removed, and the name, address and phone number of the person or entity cleaning the grease interceptor, grease trap or alternative pretreatment technology (if it has been approved by the City).

F. The owner or operator of a food facility that fails to implement best management practices or that has repeated incidents relating to grease spills or blockages shall install grease interceptors or, if a variance is granted under Subsection C of this Section, grease traps or other alternative pretreatment technology.

G. The owner, operator and employees of a food facility shall allow enforcement officials access to the food facility during the normal business hours of the food facility or outside of normal business hours, if acceptable to the food facility, for the purpose of sampling wastewater, inspecting the grease interceptors and grease traps, and reviewing the records and documentation required by Subsection E of this Section.

H. Food facilities shall comply with the latest edition of the "Rules And Regulations" regularly published by the Long Beach Water Department as they relate to the prevention of spills or blockages of fats, oils and grease, and to grease trap requirements. (Ord. 05 0003 § 1, 2005)

8.46.040 Requirements for grease interceptors.

A. The size and installation of grease interceptors shall comply with the requirements of the latest edition of the California Plumbing Code adopted by the City.

B. Grease interceptors shall be constructed in accordance with a design approved by the City's Department of Planning and Building and shall have a minimum of two (2) compartments with fittings designed for the retention of grease.

C. The owner or operator of a food facility shall install grease interceptors at a location easily accessible for inspection, cleaning and removal of grease and shall not install or allow them to be installed in any part of a building where food is handled. Owners or operators shall obtain the prior written approval for the location of grease interceptors from the City's Department of Health and Human Services.

D. The owner or operator of a food facility shall empty grease interceptors of accumulated grease and other contents as necessary to maintain the minimum capacity or volume of the grease interceptor.

E. The owner or operator of a food facility shall inspect the grease interceptor at least once each month or more frequently if ordered to do so by enforcement official when maintenance and repair of the grease interceptor is unsatisfactory.

F. The owner or operator of a food facility shall ensure that the grease interceptor provides a minimum hydraulic retention time in accordance with the latest edition of the California Plumbing Code adopted by the City, and shall remove all accumulated grease cap and sludge pockets as necessary to allow the grease interceptor to perform at maximum efficiency.

G. The owner or operator of a food facility shall keep the grease interceptor free from inorganic-solid materials including, but not limited to, grit, rocks, gravel, sand, eating utensils, cigarettes, shells, rags and similar things that could settle into the sludge pocket and reduce the effective volume of the grease interceptor.

H. The owner or operator of a food facility shall not allow the discharge of sanitary waste through a grease interceptor.

I. The owner or operator of a food facility shall provide a manhole having a minimum diameter of twenty-four inches (24") to allow access over each chamber and sanitary tee of a grease interceptor. The manholes shall extend at least to finished grade and shall be designed and maintained to prevent water inflow or infiltration. The manholes shall have covers that can be removed readily for inspection, removal of grease and sampling of wastewater. (Ord. 05 0003 § 1, 2005)

8.46.050 Requirements for grease traps.

A. Following receipt of the written approval of the Long Beach Water Department, the owner or operator of a food facility shall install a grease trap in the waste line leading from sinks, drains, and other fixtures or equipment in the food facility where fats, oils and grease may be introduced into the drainage system or sewer system in quantities that could cause a blockage in either the public or private sewer lines. In addition to the approval of the Long Beach Water Department, all grease traps must be of a type or design approved by the IAPMO (International Association of Plumbing and Mechanical Officials), NSF (National Sanitation Foundation), and UL (Underwriters' Laboratory).

B. The size and installation of grease traps shall comply with the requirements of the latest edition of the California Plumbing Code adopted by the City.

C. The owner or operator of a food facility shall not install a grease trap that has a stated rate of flow of more than fifty-five (55) gallons per minute or less than twenty (20) gallons per minute, unless the enforcement official has granted a variance from this stated rate of flow.

D. The owner or operator of a food facility shall maintain grease traps in efficient operating condition, including, but not limited to, the frequent, periodic-removal of accumulated grease and food debris, and shall maintain them in accordance with the manufacturer's directions. The owner, operator and employees of a food facility shall not allow accumulated grease to be introduced into any drain pipe or public or private sewer line.

E. The owner or operator of a food facility shall not connect a food waste disposal unit or dishwasher to a grease trap and shall not allow any discharge from a food waste disposal unit or dishwasher into a grease trap.

F. The owner or operator of a food facility shall not allow wastewater in excess of one hundred forty degrees Fahrenheit (140°F) or sixty degrees Celsius (60°C) to discharge into a grease trap. (Ord. 05 0003 § 1, 2005)

8.46.060 Enforcement.

This Chapter shall be enforced by the City Health Officer, or designee, or by the General Manager of the Long Beach Water Department, or designee. These persons shall be known as enforcement officials and they are authorized to take

any actions necessary to enforce this Chapter. (Ord. 05 0003 § 1, 2005)

8.46.070 Administrative hearing procedure.

A. The City Attorney shall appoint a Hearing Officer who shall not be an enforcement official. The Hearing Officer shall set the time and place for the hearing and send notice of the hearing to the owner of record of the food facility or restaurant and to the enforcement official at least ten (10) days before the hearing. The notice shall also include the location and the nature of alleged violation of this Chapter.

B. At least five (5) days before the hearing, the enforcement official shall provide to the owner of record and to the Hearing Officer a copy of any report made by the enforcement official or any other City employee regarding the alleged violation. If the enforcement official has a proposed plan for abatement of the alleged nuisance, then the enforcement official shall also provide this plan to the owner of record and to the Hearing Officer.

C. The Hearing Officer may proceed with the hearing in the absence of the owner of record or the enforcement official if he or she has not received an explanation for the absence prior to the commencement of the hearing.

D. Once a notice of hearing has been given, there shall be no communications between the owner of record, the operator of the food facility or restaurant or its employees regarding the alleged violation.

E. The owner of record may submit to the Hearing Officer with a copy to the enforcement official written evidence to rebut the City's report alleging a violation of this Chapter.

F. The owner and the enforcement official may make an oral statement and the time limits for the statements will be set by the Hearing Officer prior to the hearing. If either the owner or the enforcement official wishes to call witnesses at the hearing, then they shall provide the names, addresses, telephone numbers, and a summary of the testimony of the witnesses to the Hearing Officer and to the other interested party at least three (3) days prior to the hearing. The Hearing Officer may ask questions of the parties or the witnesses.

G. The Hearing Officer shall render a decision, in writing, after the hearing is closed and shall mail a copy of the decision to the owner at the address for the location of the alleged violation and shall deliver or mail a copy to the enforcement official. The decision of the Hearing Officer shall be final. (Ord. 05 0003 § 1, 2005)

8.46.080 Exemptions.

Any food facility that is not engaged in the preparation of food to be consumed by the public including, but not limited to, liquor stores, candy stores, and stores selling only prepackaged food is exempt from this Chapter. (Ord. 05 0003 § 1, 2005)

8.46.090 Severability.

If any part of this Chapter or the application of this Chapter to any person or entity is held to be invalid by a court of competent jurisdiction, then the remainder of this Chapter shall remain in full force and effect and shall not be affected by the invalidity of only part of the Chapter. (Ord. 05 0003 § 1, 2005)

8.46.100 Complementary to Chapter 15.20.

This Chapter is not intended to nor shall it be deemed to supersede or have priority over Chapter 15.20. This Chapter and Chapter 15.20 shall be construed as complementary. (Ord. 05 0003 § 1, 2005)

CHAPTER 8.48 DAIRIES AND HOG RANCHES*

8.48.010 Definitions.

A. "Dairy" as used in this Chapter means and includes any ranch, farm, lot, parcel of real property, building, barn, shed, corral, enclosure or other place where four (4) or more cows are kept or maintained and milked.

***Cross reference**—Provisions on sanitation and regulation of milk and milk product sales, see Chapter 8.36 of this Code.

State law reference—Provisions on milk and milk products, Food and Agric. C. § 32501 et seq.

B. "Hog farm" means and includes any ranch, farm, lot, parcel of real property, building, barn, shed, corral, enclosure, sty or other place where ten (10) or more swine are kept or maintained.

C. "Milk" means and includes milk, cottage cheese, cream and buttermilk. (Prior code § 5140)

8.48.020 Areas prohibited.

No person, as principal, agent, employee, or otherwise, shall maintain any dairy or hog farm within that portion of the City described as follows:

A. Beginning at the intersection of the easterly line of American Avenue with the southerly line of Wardlow Road and running thence southerly along said easterly line of American Avenue to the centerline of Anaheim Street; thence east along said centerline of Anaheim Street to the centerline of Orange Avenue; thence south along said centerline of Orange Avenue to the centerline of Eleventh Street; thence east along the centerline of Eleventh Street and the prolongation thereof to the centerline of Temple Avenue; thence southerly along said centerline of Temple Avenue and the prolongation thereof to the southerly boundary line of the City; thence westerly along said southerly boundary line of the City to the prolongation southerly of the centerline of Lime Avenue; thence northerly along said prolongation southerly and said centerline of Lime Avenue to the centerline of First Street; thence west along said centerline of First Street to the centerline of Frontenac Court; thence north along said centerline of Frontenac Court to the centerline of Fourth Street; thence west along said centerline of Fourth Street to the centerline of Golden Avenue; thence south along said centerline of Golden Avenue and the prolongation thereof to the southerly boundary line of the City; thence westerly along said southerly boundary line of the City to the westerly boundary line of the City; thence northerly along said westerly boundary line of the City and following its various courses to the prolongation southwesterly of a northwesterly boundary line of the City, said northwesterly boundary line of the City being a line one hundred feet northwesterly of, measured at right angles and parallel, to a northwesterly boundary line of the City as said boundary line existed prior to the annexation election of December 28th, 1923; thence northeasterly along said prolongation southwesterly and said northwesterly boundary line of the City and following its various courses to the northerly line of Wardlow Road, as Wardlow Road is shown on map of "Tract No. 6823", as per map recorded in Book 74, page 61 of Maps, Records of the County; thence easterly along said northerly line of Wardlow Road to the westerly line of Perris Avenue; thence easterly in a direct line to the intersection of the easterly line of Perris Avenue with the southerly line of Wardlow Road; thence easterly along said southerly line of Wardlow Road to the westerly right-of-way line of the County flood control channel; thence easterly in a direct line to the intersection of the easterly right-of-way line of the County flood control channel with the southerly line of Wardlow Road and thence easterly along said southerly line of Wardlow Road to the point of beginning.

B. Or that portion of the City lying east of a line described as follows:

Beginning at the intersection of the prolongation southerly of the centerline of Temple Avenue with the southerly boundary line of the City; and running thence northerly along said prolongation southerly and said centerline of Temple Avenue to the centerline of Eleventh Street; thence west along said centerline of Eleventh Street and the prolongation thereof to the centerline of Orange Avenue; thence north along said centerline of Orange Avenue to the centerline of Anaheim Street; thence west along said centerline of Anaheim Street to the easterly line of American Avenue; and thence northerly along said easterly line of American Avenue to the easterly line of Long Beach Boulevard; thence northerly along said easterly line of Long Beach Boulevard to a point on The Compromise Line between Rancho San Pedro and Rancho Los Cerritos, as said Compromise Line is shown in Licensed Surveyor's Map Book 6, pages 15 and 16, Records of the County, said Compromise Line being also a boundary line of the City; thence in a northeasterly direction along said Compromise

Line and following the various courses of the boundary line of the City to the easterly line of Long Beach Boulevard, as Long Beach Boulevard is located at the southerly line of Scott Street, as Scott Street is shown on Map of "Tract No. 9119", as per map recorded in Book 123, pages 33 and 34 of Maps, Records of the County; and thence northerly along the easterly line of Long Beach Boulevard to the northerly boundary line of the City. (Prior code § 5140.1)

8.48.030 Exceptions.

Nothing in this Chapter shall apply to that portion of real property in the City described as:

All that portion of Lot seven, Block twenty-nine, Cooperative Colony Tract, except the east one hundred ninety-two and sixty-five one-hundredths feet thereof, as per map recorded in Book 21, pages 15 to 16, Miscellaneous Records of the County. (Prior code § 5140.3)

CHAPTER 8.52 FUMIGATING AND DISINFECTING

8.52.010 Notice to Health Officer.

No person shall put or place any cyanide or other dangerously poisonous material in any house or other building for the purpose of fumigating or disinfecting the same unless written notice thereof is given to the Health Officer at least three (3) days in advance thereof stating the intention of such person to so put or place such cyanide or other dangerously poisonous material, together with the exact location of the house or other building to be fumigated or disinfected. (Prior code § 5150)

CHAPTER 8.56 WEED REMOVAL*

8.56.010 Purpose.

This Chapter is enacted pursuant to the City Charter and State law for the purpose, among others, of providing a system to keep all privately owned real property within the City free of weeds and debris and providing a system for levy and collection to cover the cost of such removal by the City including incurred enforcement costs. (Ord. C-7098 § 1, 1993: Ord. C-6104 § 1 (part), 1984)

8.56.020 Definitions.

For the purpose of this Chapter, certain terms used shall have the meaning provided in this Section unless such meaning would be repugnant to the subject matter or the context in which used:

A. "Lot" means a lot, parcel, tract or piece of land, improved or unimproved, in the City, including the sidewalk area abutting or adjoining said lot, parcel, tract or piece of land, and the parkway or area lying between the curbline and the property line of the adjoining or abutting lot bounded on the sides by the prolongation in a straight line of the side lines of the lot in front of which such parkway or area exists.

B. "Lot cleaning levy" means the charge made by the Building Official for removing weeds or debris from a lot plus all penalties for nonpayment of the charges which have accrued at the time plus any civil penalties that are assessable under the provisions of Section 8.56.210. In the event the owner fails to comply within the time frame established by the Building Official or as modified on appeal by the Board of Examiners, Appeals and Condemnation, the lot cleaning levy shall also include all incidental enforcement costs incurred by the City whether or not the work was performed later by the City, by the owner, or by others, except as provided below. Incidental enforcement costs include, but are not limited to, the actual expenses and costs of the City in investigating the nuisance, obtaining title information, preparing notices, and performing inspections. Incidental enforcement costs shall not be included in the lot cleaning levy for a property owned by a head of a low-income household (defined to be a household earning less than eighty percent (80%) of the County median income).

C. "Weeds" and/or "debris" includes all bushes, vines, trees, grass or other vegetation, whether cultivated or uncultivated, and whether dead or growing, and all refuse and rubbish of any kind or description, or wood, asphalt, concrete and simi-

*__Note__—Prior ordinance history: Prior code §§ 5230—5230.21, 5568.

lar materials, or tin cans, parts of machinery, implements and automobiles, any of which cause unpleasant or noxious odors, or which are or may become a refuge or breeding place for insects and vermin, or which conceal or are capable of concealing filth and other unsanitary conditions, or which are, or are capable of becoming, a fire or other hazard to the use and occupancy of neighboring properties, or which obstruct or hinder the use of any public street, sidewalk, alley or way. (ORD-19-0032 § 2, 2019; Ord. C-7098 § 2, 1993; Ord. C-6104 § 1 (part), 1984)

8.56.030 Nuisance.

The existence upon any lot of weeds and/or debris, as defined in this Chapter, is expressly declared to be a public nuisance, and it shall be the duty of both the owner of the lot and any person who may be in possession thereof or who has a right to such possession, to at all times keep such lot clean and free therefrom. (Ord. C-6104 § 1 (part), 1984)

8.56.040 Notice—Form.

Whenever the Building Official finds weeds and/or debris on any lot, he shall cause a notice to clean premises to be given to the assessee of the lot as shown upon the current equalized assessment roll, in the manner provided in this Section, and the assessee shall be deemed to be the agent of the owner for the purpose of receiving service of the notice. The notice shall be in substantially the following form:

NOTICE TO CLEAN PREMISES

To _____, as owner of the hereinafter described premises:

Pursuant to the provisions of Chapter 8.56 of the Municipal Code of the City of Long Beach, you are hereby notified to remove from_____

_____

(Description of property)

AKA:_____

(address)

All weeds and/or debris, as defined in said Municipal Code, within fifteen (15) days from the date of this notice. If such weeds and/or debris are not removed within that time, the undersigned will cause it to be removed and the charges for removal, including all incidental enforcement costs incurred by the City, shall become a lien upon your property. Be advised that incidental enforcement costs will become a lien upon your property if the weeds and/or debris are not removed within fifteen (15) days even if you perform the work later.

If you intend to remove such weeds and/or debris on your account, you are required, pursuant to the Long Beach Municipal Code, to obtain from the undersigned a certificate stating that your premises have been satisfactorily cleaned; otherwise he will, if dissatisfied with the manner in which said work has been done, cause the premises to be recleaned at your expense.

If you object to cleaning the weeds and/or debris from your premises you may appeal to the Board of Examiners, Appeals and Condemnation by filing a written notice of appeal in the office of the undersigned within fifteen (15) days from the date of this notice. Failure to appeal shall be construed as your acceptance of the Building Official's determination and any and all remedies provided by the Long Beach Municipal Code.

Dated:_____

_____

Building Official
City of Long Beach

(ORD-26-0004 § 3, 2026; Ord. C-7098 § 3, 1993: Ord. C-6104 § 1 (part), 1984)

8.56.050 Notice—Service.

The notice to clean premises shall be served upon the person whose name appears on the current equalized assessment roll as the owner of the premises involved. Such service may be made either by personal delivery of the notice or by depositing the same in the United States mail, postage prepaid, as certified, first class mail, return receipt requested, addressed to the owner at the most recent address appearing on the assessment roll, or if no address appears thereon, such service may be made by posting the notice in a conspicu-

ous place upon the property. Proof of the service of the notice shall be made by affidavit of the person affecting the service, and the affidavit shall be sufficient for all purposes. (Ord. C-6104 § 1 (part), 1984)

8.56.060 Appeal hearing—Service of notice.

A. The Building Official shall serve on the owner who has appealed, a copy of the notice of hearing by certified mail.

B. The notice of hearing shall be served at least ten (10) days before the hearing. Proof of service shall be made by declaration filed with the Board of Examiners, Appeals and Condemnation.

C. Service shall be completed at the time of the deposit of the notice in a receptacle maintained by the United States Postal Service, with postage thereon fully prepaid.

D. "Owner", as used in this Section, means any person so designated on the last equalized assessment roll and also any person having or claiming to have any legal or equitable interest in the premises.

E. The failure of any person to receive such notice shall not affect the validity of any proceedings under this Chapter. (Ord. C-6104 § 1 (part), 1984)

8.56.070 Appeal—Hearing—Procedure.

A. At the time stated in the notice, the Board shall hear and consider all relevant evidence, objections or protests, and shall receive testimony from owners, witnesses, including City personnel, and interested persons relative to the alleged public nuisance and to the proposed cleaning of the premises. The hearing may be continued without further notice.

B. Upon conclusion of the hearing, the Board shall determine whether the premises, or any part thereof, as maintained, constitutes a public nuisance as defined in this Chapter. If the Board finds that such public nuisance does exist, it shall determine how the nuisance is to be abated and shall establish a time, not to exceed fifteen (15) days, within which cleaning shall take place; and in the event the owner fails to correct the nuisance within the time prescribed, the City shall cause the nuisance to be abated and the cost incurred by the City, including incidental enforcement costs, plus any prescribed penalties, shall become a lien upon the property.

C. A copy of the Board's determination shall be served by mail upon the owner of the affected premises. Service shall be complete at the time of its deposit in a receptacle maintained by the United States Postal Service, with postage thereon fully prepaid.

D. No legal proceeding or action shall lie against the City or any officer, agent or employee of the City, to review or enjoin the enforcement of its determination or orders made pursuant to this Chapter, unless such legal action is commenced within thirty (30) days after the decision of the Board. (ORD-26-0004 § 4, 2026; Ord. C-7098 § 4, 1993; Ord. C-6104 § 1 (part), 1984)

8.56.080 Owner removal notice.

Every owner served with a notice or order to clean premises, who upon his own account cleans the weeds and/or debris from his lot shall upon completion of the work immediately give written notice thereof to the Building Official. Such notice shall be either delivered or mailed to the office of the Building Official. Upon receipt of such notice the Building Official shall cause the lot to be inspected, and if no weeds and/or debris exist thereon he shall issue to the owner a certificate so stating. If weeds and/or debris still exist on the lot, he shall cause the same to be removed and the cost thereof assessed against the lot as if no such notice was received from the owner. (Ord. C-6104 § 1 (part), 1984)

8.56.090 City removal—Authorized.

If any owner served with a notice to clean premises fails to remove the weeds and/or debris from his lot within the time stated in the notice, or order of the Board of Examiners, Appeals and Condemnation after appeal, he shall be deemed to have consented to such removal by the Building Official who shall thereupon be authorized, and it

shall be his duty to enter upon the lot involved and clean the weeds and/or debris therefrom. (Ord. C-6104 § 1 (part), 1984)

8.56.100 City removal—Lot cleaning levy computation.

The Building Official shall, after the removal of weeds and/or debris from any lot, compute all expenses so incurred by the City in connection therewith including the applicable processing fees as set forth by City Council resolution and all incidental enforcement costs plus any prescribed penalties. All expenses shall be charged to and become an indebtedness of the owner of such premises, except that incidental enforcement costs shall not be included in the lot cleaning levy for a property owned by a head of a low-income household (defined to be a household earning less than eighty percent (80%) of the County median income). (Ord. C-7098 § 5, 1993: Ord. C-6104 § 1 (part), 1984)

8.56.110 City removal—Lot cleaning levy payment notice.

Upon computing the expenses, the Building Official shall serve upon the owners of all lots cleaned, as said owners are determined from the current assessment roll, and in the same manner as provided for service of the notice to clean premises, a notice to pay lot cleaning levy (sometimes referred to in chapter as notice to pay), which notice shall be in substantially the following form:

NOTICE TO PAY
LOT CLEANING LEVY

In accordance with the provisions of Chapter 8.56 of the Long Beach Municipal Code, the Building Official has caused the weeds and/or debris upon_____

_____

(legal)

AKA_____

(address)

to be cleaned either at City expense or the work was accomplished by that owner or others after the established deadline.

You are hereby notified that the total cost, including incidental enforcement costs and any prescribed penalties, of _____ are now due and payable to the City of Long Beach.

Section 8.56.120 of the Long Beach Municipal Code provides, in part, that the property owner or any interested person may demand a hearing within fifteen (15) days of this notice before the Board of Examiners, Appeals and Condemnation on the reasonableness of the charges. Such demand shall be in writing, filed with the Building Official and shall describe the property involved, the reasons for objecting, the name, address and interest of the appellant.

If no hearing is demanded, this payment shall become delinquent thirty (30) days from this notice and a lien for said amount, plus a fee for preparation of the lien, shall be attached to the affected property and thereafter bear interest at the rate of twelve percent (12%) per annum until paid. An additional fee will be incurred in the event that payment is not received before the end of the fiscal year (June 30) and transfer of collection to the City Treasurer becomes necessary.
(Ord. C-7098 § 6, 1993: Ord. C-6104 § 1 (part), 1984)

8.56.120 Hearing on charges.

Within fifteen (15) days from the date of the notice to pay, the property owner, or any interested person, may demand a hearing as to the reasonableness of such charges. Such demand shall be in writing and filed with the Building Official. It shall describe the property involved, state the reasons for objecting, and include the address of the applicant for service of notices in connection with such hearing. The Building Official shall thereupon set a date for hearing such protest by the Board of Examiners, Appeals and Condemnation within a reasonable time. The Building Official shall send written notice of such hearing in the manner provided in Section 8.56.060. At the time set for such hearing, the Board shall hear all evidence pertinent to the reasonableness of such charges and shall then either confirm or modify the charges. The decision of the Board shall be

final, and the Building Official shall give notice to the parties affected in the manner provided in Section 8.56.070. (Ord. C-6104 § 1 (part), 1984)

8.56.130 Interest of charges.

If the amount of the charges as determined by the Board of Examiners, Appeals and Condemnation has not been paid within thirty (30) days of its decision, the payment shall thereupon become delinquent and a lien against the real property and the amount so determined shall thereafter bear interest at the rate of twelve percent (12%) per annum until paid. If no hearing is demanded as to the reasonableness of the charges, the payment shall become delinquent and a lien against the real property thirty (30) days after the notice of the charges for abatement is served by the Building Official; and such amount shall thereafter bear interest at the rate of twelve percent (12%) per annum until paid. (Ord. C-6104 § 1 (part), 1984)

8.56.140 Transfer of collection.

The Building Official shall certify a list of all delinquent charges for lot cleaning or nuisance abatement to the City Treasurer who shall submit the list to the City Council for confirmation. Each parcel of property shall be described sufficiently to identify it in accordance with the records of the County Tax Collector. The amount of the charges including such interest as has accrued after the delinquent date to July 1st of the year shall be set forth opposite the description by the City Treasurer. (Ord. C-6104 § 1 (part), 1984)

8.56.150 Method of collection.

Upon receipt of the list, the County Tax Collector shall enter the charges shown thereon for each parcel of property upon the current tax roll and shall proceed to collect the charges in the same manner as ad valorem taxes, and penalties and interest for nonpayment thereafter shall attach as though the amounts were ad valorem taxes; provided, however, that no receipt for payment of ad valorem taxes appearing upon the tax roll as against a particular parcel shall be issued unless all such charges for collection for lot cleaning, correction of substandard conditions or nuisance abatement, and penalties thereon, entered upon that tax roll against the lot are first paid in full. (Ord. C-6104 § 1(part), 1984)

8.56.160 Tax—Sold property.

Upon the sale of any lot to the State for nonpayment of taxes, all charges for lot cleaning, correction of substandard conditions or nuisance abatement for the parcel appearing upon the tax roll, together with the penalties thereon, shall be added to and become a part of the same delinquent tax record. (Ord. C-6104 § 1 (part), 1984)

8.56.170 Tax—Sold property—Redemptions.

No certificate of redemption from sale for delinquent taxes shall be issued until all charges for lot cleaning, correction of substandard conditions and nuisance abatement, and penalties entered on the delinquent tax records against the property involved, have first been paid in full. (Ord. C-6104 § 1 (part), 1984)

8.56.180 Error correction—Assessment cancellation.

A. The Building Official may, prior to certifying any such unpaid charges to the City Treasurer, correct any errors with respect to such levies appearing upon his records.

B. After such levies have been certified to the City Treasurer and confirmed by the City Council, the Council, by order entered on its minutes, may cancel any charges for lot cleaning, correction of substandard conditions or nuisance abatement, or penalty, or any portion of either thereof, appearing on the tax records, which, because of error, is charged against the wrong property, or which has been paid but such payment has not been recorded upon the tax records, or which is based upon a clerical error in such records, or which was charged against property acquired subsequent to the lien date by the United States, by the State, or any City, or any school district or other political subdivision and, because of this public ownership, not subject to sale for delinquent assessments. (Ord. C-6104 § 1 (part), 1984)

8.56.190 Interfering with enforcement prohibited.

No person as owner, lessee, or agent or person in possession of any property within the City shall allow a public nuisance, as defined in Section 8.56.030, to exist within the City, or refuse to allow the Building Official to enter upon any property during the hours of daylight where any such nuisance exists, for the purpose of inspecting or abating same, after notice has been given as provided in Section 8.56.040, or after appeal is concluded or time for appeal has expired, or interfere with the Building Official in any manner whatsoever in the abating of the nuisance. (Ord. C-6104 § 1 (part), 1984)

8.56.200 No dumping—Property may be posted.

A. The Building Official may post a "no dumping" sign on any public or private property if he finds that such property has been repeatedly subjected to dumping in violation of Section 374b of the Penal Code.

B. The sign shall read:

NO DUMPING
(Penal Code Section 374b)
Violators Will Be Prosecuted

In addition, the sign shall contain an appropriate City telephone number designated by the Building Official. (Ord. C-6407 § 1, 1987)

8.56.210 Civil penalty—City removal more than once.

If the Building Official finds that the City had previously removed weeds from the same property after notice to the same owner, he shall assess a civil penalty based on the following schedule when weeds are again removed by the City:

Civil penalty: for previous removal of weeds by the City once within the preceding five (5) years—fifty percent (50%) of the City's administrative cost for removal including processing fees; for previous removal by the City two (2) or more times within the preceding five (5) years—one hundred percent (100%) of the City's administrative cost for removal including processing fees.

The City will give notice of this civil penalty to all property owners when weed abatement procedures are instituted against their properties.

The imposition of this civil penalty may be appealed to the Board of Examiners, Appeals and Condemnation, as provided in Section 8.56.120.

The civil penalty constitutes a debt of the person charged to the City of Long Beach and is collectible by the City as an obligation or liability created by statute. (Ord. C-6498 § 1, 1988)

CHAPTER 8.58 GRAFFITI ABATEMENT

8.58.010 Purpose.

This Chapter is enacted for the purpose of providing a system to keep all privately owned real property within the City free of graffiti and providing a system for levy and collection to cover the cost of such removal by the City.

The increase of graffiti on both private and public buildings and structures creates a condition of blight resulting in a deterioration of property and business values for adjacent properties all to the detriment of the City. (Ord. C-6769 § 1 (part), 1990)

8.58.020 Definitions.

For the purpose of this Chapter, certain terms used shall have the meaning provided in this Section:

A. "Lot" means a lot, parcel, tract, premises or piece of land, improved or unimproved, in the City.

B. "Graffiti removal levy" means the charge made by the Building Official for removing graffiti from a lot plus all penalties for nonpayment of the charges which have accrued.

C. "Graffiti" means any unauthorized inscription, word, figure or design which is marked, etched, scratched, drawn or painted on any structural component of any building structure, or other facility regardless of the nature of the material of that structural component.

D. "Owner" as used in this Section, means any person so designated on the last equalized

assessment roll and also any person having or claiming to have any legal or equitable interest in the premises. (Ord. C-6769 § 1 (part), 1990)

8.58.030 Nuisance.

The existence upon any lot of graffiti is expressly declared to be a public nuisance, and it shall be the duty of both the owner of the lot and any person who may be in possession or who has a right to such possession, to at all times keep such lot clean and free from graffiti. (Ord. C-6769 § 1 (part), 1990)

8.58.040 Notice—Form.

Whenever the Building Official finds on any lot graffiti which can be seen by any person using any public right-of-way, he shall cause a notice to remove graffiti to be given to the assessee of the lot as shown upon the current equalized assessment roll, and the assessee shall be deemed to be the agent of the owner and tenant for the purpose of receiving service of the notice. The notice shall be in substantially the following form:

NOTICE TO REMOVE GRAFFITI

To_____, as owner:

Pursuant to the provisions of Chapter 8.58 of the Long Beach Municipal Code, you are hereby notified to remove from_____

_____

(Description of property)

AKA_____

Address

all graffiti as defined in the Municipal Code, within seven (7) days from the date of this notice. If such graffiti is not removed within that time, the City will cause it to be removed and the charges for removal shall become a personal obligation and a lien upon your property.

If you intend to remove such graffiti yourself, you are required to obtain from the City a certificate stating that the graffiti has been satisfactorily removed; otherwise if the City is dissatisfied with the manner in which the work has been done, the graffiti will be further removed at your expense.

If you object to the removal of the graffiti from your premises, you may appeal to the Board of Examiners, Appeals and Condemnation by filing a written notice of appeal in the office of the undersigned within five (5) days from the date of this notice. Failure to appeal shall be construed as your acceptance of the Building Official's determination and any and all remedies provided by the Long Beach Municipal Code.

Dated: _____

_____

Superintendent of Building and Safety
City of Long Beach

(Ord. C-6769 § 1 (part), 1990)

8.58.050 Notice—Service.

The notice to remove graffiti shall be served upon the person whose name appears on the current equalized assessment roll as the owner of the premises involved. Such service may be made either by personal delivery or by depositing the notice in the United States mail, postage prepaid, as certified, first class mail, return receipt requested, addressed to the owner at the most recent address appearing on the assessment roll, or if no address appears thereon, such service may be made by posting the notice in a conspicuous place upon the property. Proof of the service of the notice shall be made by affidavit of the person effecting the service, and the affidavit shall be sufficient for all purposes. (Ord. C-6769 § 1 (part), 1990)

8.58.060 Appeal hearing—Service of notice.

A. If there is an appeal, the Building Official shall serve on the owner who has appealed, a copy of the notice of hearing by certified mail.

B. The notice of hearing shall be served at least ten (10) days before the hearing. Proof of service shall be made by declaration filed with the Board of Examiners, Appeals and Condemnation.

C. Service shall be completed at the time of the deposit of the notice in a receptacle maintained by the United States Postal Service, with postage fully prepaid.

D. The failure of any person to receive such notice of hearing shall not affect the validity of any proceedings under this Chapter. (Ord. C-6769 § 1 (part), 1990)

8.58.070 Appeal—Hearing—Procedure.

A. At the time stated in the notice, the Board shall hear and consider all relevant evidence, objections or protests, and shall receive testimony from owners, witnesses, including City personnel, and interested persons relative to the alleged public nuisance and to the proposed removal of the graffiti. The hearing may be continued without further notice.

B. Upon conclusion of the hearing, the Board shall determine whether the premises, as maintained, constitutes a public nuisance as defined in this Chapter. If the Board finds that such public nuisance does exist, it shall determine how the nuisance is to be abated and shall establish a time, not to exceed seven (7) days, within which removal shall take place; and in the event the owner fails to correct the nuisance within the time prescribed, the City shall cause the nuisance to be abated and the cost incurred by the City shall become a personal obligation of the owner and tenant and a lien on the property.

C. A copy of the Board's determination shall be served by mail upon the owner of the affected premises. Service shall be completed at the time of its deposit in a receptacle maintained by the United States Postal Service, with postage fully prepaid.

D. No legal proceeding or action shall lie against the City or any officer, agent or employee of the City to enjoin the enforcement of its determination or orders made pursuant to this Chapter, unless such legal action is commenced within thirty (30) days after the decision of the Board. (Ord. C-6769 § 1 (part), 1990)

8.58.080 Owner removal notice.

Every owner served with a notice or order to remove graffiti who upon his own account removes the graffiti from his lot shall upon completion of the work immediately give written notice thereof to the Building Official. Such notice shall be either delivered or mailed to the office of the Building Official. Upon receipt of such notice the Building Official shall cause the lot to be inspected, and if no graffiti exists thereon he shall issue the owner a certificate so stating. If graffiti still exists on the lot, he shall cause it to be removed and the cost will be assessed against the owner and tenant and become a lien on the property as if no such notice of removal was received from the owner. (Ord. C-6769 § 1 (part), 1990)

8.58.090 City removal—Authorized.

If any owner served with a notice fails to remove the graffiti from his lot within the time stated in the notice, or order of the Board of Examiners, Appeals and Condemnation after appeal, he shall be deemed to have consented to such removal by the Building Official who shall thereupon be authorized, to enter upon the lot involved and remove the graffiti. (Ord. C-6769 § 1 (part), 1990)

8.58.100 City removal—Graffiti abatement levy computation.

The Building Official shall, after completing the removal of graffiti from any lot, compute all expenses so incurred by the City, including the applicable processing fees as set forth by City Council resolution. All expenses shall be charged to and become an indebtedness of the owner and tenant of such premises. (Ord. C-6769 § 1 (part), 1990)

8.58.110 City removal—Graffiti abatement levy payment notice.

Upon computing the expenses, the Building Official shall serve upon the owners of all lots where graffiti was removed, as the owners are determined from the current assessment roll, a notice to pay the graffiti abatement levy which notice shall be in substantially the following form:

NOTICE TO PAY GRAFFITI
ABATEMENT LEVY

In accordance with the provisions of Chapter 8.58 of the Long Beach Municipal Code, the Building Official has caused the graffiti upon_____

_____

(legal)

AKA_____

(address)

to be removed at City expense.

You are hereby notified that the total cost of _____ is now due and payable to the City of Long Beach.

Section 8.58.120 of the Long Beach Municipal Code provides in part, that the property owner, tenant or any other interested person may demand a hearing within fifteen (15) days of this notice before the Board of Examiners, Appeals and Condemnation on the reasonableness of the charges. Such demand shall be in writing, filed with the Building Official and shall describe the property involved, the reasons for objecting, the name, address and interest of the appellant.

If no hearing is demanded, this payment shall become delinquent thirty (30) days from this notice and if the amount due is not otherwise collected, a lien for this amount, plus a fee for preparation of the lien and any civil penalty shall be attached on the affected property and thereafter bear interest at the rate of twelve percent (12%) per annum until paid. An additional fee will be incurred in the event that payment is not received before the end of the fiscal year (June 30) and transfer for collection to the City Treasurer becomes necessary.

(Ord. C-6769 § 1 (part), 1990)

8.58.120 Hearing on charges.

Within fifteen (15) days from the date of the notice to pay, the property owner, tenant or any other interested person, may demand a hearing as to the reasonableness of such charges. Such demand shall be in writing and filed with the Building Official. It shall describe the property involved, state the reasons for objecting, and include the address of the applicant for service of notices in connection with such hearing. The Building Official shall thereupon set a date for hearing such protest by the Board of Examiners, Appeals and Condemnation within a reasonable time. The Building Official shall send written notice of such hearing in the manner provided in Section 8.58.060. At the time set for such hearing, the Board shall hear all evidence pertinent to the reasonableness of such charges and shall then either confirm or modify the charges. The decision of the Board shall be final, and the Building Official shall give notice to the parties affected in the manner provided in Section 8.58.070. (Ord. C-6769 § 1 (part), 1990)

8.58.130 Interest of charges.

If the amount of the charges as determined by the Board of Examiners, Appeals and Condemnation has not been paid within thirty (30) days of its decision, the payment shall thereupon become delinquent and if the amount due is not otherwise collected, a lien against the real property, and the amount so determined shall thereafter bear interest at the rate of twelve percent (12%) per annum until paid. If no hearing is demanded as to the reasonableness of the charges, the payment shall become delinquent and if the amount due is not otherwise collected, a lien against the real property thirty (30) days after the notice of charges for abatement is served by the Building Official; and such amount shall thereafter bear interest at the rate of twelve percent (12%) per annum until paid. (Ord. C-6769 § 1 (part), 1990)

8.58.140 Transfer of collection.

The Building Official shall certify a list of all delinquent charges for graffiti abatement to the City Treasurer who shall submit the list to the City Council for confirmation. Each parcel of property shall be described sufficiently to identify it in accordance with the records of the County Tax Collector. The amount of the charges including such interest as has accrued after the delinquent date to July 1st of the year shall be set forth opposite the description by the City Treasurer. (Ord. C-6769 § 1 (part), 1990)

8.58.150 Method of collection.

Upon receipt of the list, the County Tax Collector shall enter the charges shown thereon for each parcel of property upon the current tax roll and shall proceed to collect the charges in the same

manner as ad valorem taxes, and penalties and interest for nonpayment thereafter shall attach as though the amounts were ad valorem taxes; provided, however, that no receipt for payment of ad valorem taxes appearing upon the tax roll as against a particular parcel shall be issued unless all such charges for collection for graffiti abatement and penalties thereon, entered upon that tax roll against the lot are first paid in full. (Ord. C-6769 § 1 (part), 1990)

8.58.160 Tax—Sold property.

Upon the sale of any lot to the State for nonpayment of taxes, all charges for graffiti abatement for the parcel appearing upon the tax roll, together with the penalties thereon, shall be added to and become a part of the same delinquent tax record. (Ord. C-6769 § 1 (part), 1990)

8.58.170 Tax—Sold property—Redemptions.

No certificate of redemption from sale for delinquent taxes shall be issued until all charges for graffiti abatement, and penalties entered on the delinquent tax records against the property involved, have first been paid in full. (Ord. C-6769 § 1 (part), 1990)

8.58.180 Error correction—Assessment cancellation.

A. The Building Official may, prior to certifying any such unpaid charges to the City Treasurer, correct any errors with respect to such levies appearing upon his records.

B. After such levies have been certified to the City Treasurer and confirmed by the City Council, the Council, by order entered on its minutes, may cancel any charges for graffiti abatement, or penalty, or any portion of either thereof, appearing on the tax records, which, because of error, is charged against the wrong property, or which has been paid but such payment has not been recorded upon the tax records, or which is based upon a clerical error in such records, or which was charged against property acquired subsequent to the lien date by the United States, by the State, or any City, or any school district or other political subdivision and, because of this public ownership, not subject to sale for delinquent assessments. (Ord. C-6769 § 1 (part), 1990)

8.58.190 Interfering with enforcement prohibited.

No person as owner, lessee, or agent or person in possession of any property within the City shall allow a "public nuisance", as defined in Section 8.58.030, to exist within the City, or refuse to allow the Building Official to enter upon any property during the hours of daylight where any such nuisance exists, for the purpose of inspecting or abating same, after notice has been given as provided in Section 8.58.040, or after appeal is concluded or time for appeal has expired, or interfere with the Building Official in any manner whatsoever in the abating of the nuisance. (Ord. C-6769 § 1 (part), 1990)

8.58.200 Civil penalty—City removal more than once.

If the Building Official finds that the City had previously removed graffiti from the same property after notice to the same owner, he shall assess a civil penalty based on the following schedule when graffiti is again removed by the City:

Civil penalty: For previous removal of graffiti by the City once within the preceding five (5) years - fifty percent (50%) of the City's total cost for removal including processing fees; for previous removal by the City two (2) or more times within the preceding five (5) years - one hundred percent (100%) of the City's total cost for removal including processing fees.

The City will give notice of this civil penalty to all property owners when graffiti abatement procedures are instituted against their properties.

The imposition of this civil penalty may be appealed to the Board of Examiners, Appeals and Condemnation, as provided in Section 8.58.120.

The civil penalty constitutes a debt of the person charged to the City and is collectible by the City as an obligation or liability created by statute. (Ord. C-6769 § 1 (part), 1990)

8.58.210 Delegation of duties.

Whenever this Chapter designates duties to be performed by the "Building Official" or "Superintendent of Building and Safety", those same duties may be performed by the Director of Public Works when authorized by the City Manager. (Ord. C-6769 § 1 (part), 1990)

CHAPTER 8.59 RESERVED*

CHAPTER 8.60 SOLID WASTE, RECYCLING AND LITTER PREVENTION AND MANDATORY ORGANIC WASTE DISPOSAL REDUCTION†

8.60.010 Definitions.

For the purpose of this Chapter, unless the context clearly requires a different meaning, the words, terms and phrases set forth in this Section are defined as follows:

A. "Account" means any property owner or occupant of any dwelling unit, dwelling, building, premises, lot or parcel designated for City solid waste collection services by the Director of Public Works.

B. "Apartment" means each dwelling unit in a multiple-family dwelling containing three (3) or more dwelling units. Three (3) or more dwelling units constructed as separate buildings but located on a common lot or parcel shall be considered as apartments for the purpose of this Chapter.

C. "Automated collection" means solid waste collection service using a receptacle (cart) which requires limited or no manual moving and no manual lifting by City personnel or their designee.

D. "Building construction refuse" means waste material resulting from the construction, remodeling, repair and demolition operations on houses, commercial buildings, other structures, and any surrounding grounds.

E. "CalRecycle" means California's Department of Resources Recycling and Recovery, which is the Department designated with responsibility for developing, implementing, and enforcing all recycling and waste diversion regulations, including SB 1383 Regulations on Cities (and others).

F. "California Code of Regulations" or "CCR" means the State of California Code of Regulations. CCR references in this ordinance are preceded with a number that refers to the relevant Title of the CCR (e.g., "14 CCR" refers to Title 14 of CCR).

G. "Cart" means a receptacle of one hundred one (101) gallons or less provided by the City or its designee for the automated or semi-automated collection of refuse, recycling or organics.

H. "City" means the City of Long Beach, a municipal corporation.

I. "City Enforcement Official" means the City Manager, or their authorized Designee(s) who is/are partially or whole responsible for enforcing the ordinance.

J. "Commercial bin(s)" means receptacles with a capacity greater than one hundred one (101) gallons that require minimal manual moving but no manual lifting.

K. "Commercial Business" or "Commercial" means a firm, partnership, proprietorship, joint-stock company, corporation, or association, whether for-profit or nonprofit, strip mall, industrial facility, or a multifamily residential dwelling, or as otherwise defined in 14 CCR Section 18982(a)(6). A Multi-Family Residential Dwelling that consists of fewer than five (5) units is not a Commercial Business for purposes of implementing this ordinance.

L. "Commercial Edible Food Generator" includes a Tier One or a Tier Two Commercial Edible Food Generator as defined in Sections 3(SSSS) and 3(TTTT) of this ordinance [8.60.010.SSSS and TTTT] or as otherwise de-

---

***Editor's note**—ORD-19-0032, § 15, adopted Nov. 19, 2019, repealed Ch. 8.59 §§ 8.59.010—8.59.190 entitled "Lot Fencing," which derived from Ord. 05-0002 § 1, 2005.

†**Editor's note**—Section 1 of ORD-21-0040 amended the title of Ch. 8.60 as herein set out. Formerly entitled "Solid Waste, Recycling and Litter Prevention."

State law reference—Provisions authorizing cities to contract for garbage and rubbish disposal and to prescribe terms for such services, Pub. Res. C. § 49300.

Note—Prior ordinance history: Ord. C-5320; Ord. C-5401; Ord. C-5444; Ord. C-5533.

fined in 14 CCR Sections 18982(a)(73) and (a)(74). For the purposes of this definition, Food Recovery Organizations and Food Recovery Services are not Commercial Edible Food Generators pursuant to 14 CCR Section 18982(a)(7).

M. "Commercial service" means solid waste collection services provided by City crews or its designee for nonresidential or mixed use accounts.

N. "Community Composting" means any activity that composts green material, agricultural material, food material, and vegetative food material, alone or in combination, and the total amount of feedstock and Compost on-site at any one time does not exceed one hundred (100) cubic yards and seven hundred fifty (750) square feet, as specified in 14 CCR Section 17855(a)(4); or, as otherwise defined by 14 CCR Section 18982(a)(8).

O. "Compliance Review" means a review of records by a City to determine compliance with this ordinance.

P. "Compost" has the same meaning as in 14 CCR Section 17896.2(a)(4), which stated, as of the effective date of this ordinance, that Compost means the product resulting from the controlled biological decomposition of organic Solid Wastes that are Source Separated from the municipal Solid Waste stream, or which are separated at a centralized facility.

Q. "Compostable Plastics" or "Compostable Plastic" means plastic materials that meet the ASTM D6400 standard for compostability, or as otherwise described in 14 CCR Sections 18984.1(a)(1)(A) or 18984.2(a)(1)(C).

R. "Container Contamination" or "Contaminated Container" means a container, regardless of color, that contains Prohibited Container Contaminants, or as otherwise defined in 14 CCR Section 18982(a)(55).

S. "C&D" means construction and demolition debris.

T. "Daily charge" means the daily cost to each classification of dwelling unit or commercial unit as prescribed by the rate schedule applicable to that service.

U. "Designated Source-Separated Organic Waste Facility" as defined in 14 CCR Section 18982(14.5), means a Solid Waste facility that accepts a Source Separated Organic Waste collection stream as defined in 14 CCR Section 17402(a)(26.6) and complies with one of the following:

1. The facility is a "transfer/processor," as defined in 14 CCR Section 18815.2(a)(62), that is in compliance with the reporting requirements of 14 CCR Section 18815.5(d), and meets or exceeds an annual average Source Separated organic content Recovery rate of fifty percent (50%) between January 1, 2022 and December 31, 2024 and seventy-five percent (75%) on and after January 1, 2025 as calculated pursuant to 14 CCR Section 18815.5(f) for Organic Waste received from the Source Separated Organic Waste collection stream.

a. If a transfer/processor has an annual average Source Separated organic content Recovery rate lower than the rate required in Paragraph 1 of this definition for two (2) consecutive reporting periods, or three (3) reporting periods within three (3) years, the facility shall not qualify as a "Designated Source Separated Organic Waste Facility".

2. The facility is a "composting operation" or "composting facility" as defined in 14 CCR Section 18815.2(a)(13), that pursuant to the reports submitted under 14 CCR Section 18815.7 demonstrates that the percent of the material removed for landfill disposal that is Organic Waste is less than the percent specified in 14 CCR Sections 17409.5.8(c)(2) or 17409.5.8(c)(3), whichever is applicable, and, if applicable, complies with the digestate handling requirements specified in 14 CCR Section 17896.5.

a. If the percent of the material removed for landfill disposal that is Organic Waste is more than the percent specified in 14 CCR Sections 17409.5.8(c)(2) or 17409.5.8(c)(3), for two (2) consecutive reporting periods, or three (3) reporting periods within three (3) years, the facility shall not qualify as a "Designated Source Separated Organic Waste Facility." For the purposes of this ordinance, the reporting periods shall be consistent with those defined in 14 CCR Section 18815.2(a)(49). Guidance: The reporting periods identified in the above Section 3(l)(2)(A) are con-

sistent with reporting that facilities must submit to CalRecycle under RDRS regulations and not reporting to be submitted under this ordinance.

V. "Designee" means an entity that a City contracts with or otherwise arranges to carry out any of the City's responsibilities of this ordinance as authorized in 14 CCR Section 18981.2. A Designee may be a government entity, a hauler, a private entity, or a combination of those entities.

W. "Director of Public Works" means the Director or such other person designated by the City Manager to direct refuse, recycling, and organics operations or their designee.

X. "Duplex" means any dwelling containing only two (2) dwelling units. Two (2) dwelling units constructed as separate buildings located on a common lot or parcel shall be considered as duplex units for the purpose of this Chapter.

Y. "Dwelling" means any building, including one-family, two-family, and multiple-family dwellings, designed or used for residential occupancy by one (1) or more persons.

Z. "Dwelling unit" means one (1) or more rooms designed as a unit of occupancy as separate living quarters. No single dwelling unit may contain more than one (1) kitchen. Any self-contained area with more than one (1) room, an independent exterior exit, combined with a bathtub or shower and a sink shall also be considered a dwelling unit.

AA. "Edible Food" means food intended for human consumption, or as otherwise defined in 14 CCR Section 18982(a)(18). For the purposes of this ordinance or as otherwise defined in 14 CCR Section 18982(a)(18), "Edible Food" is not Solid Waste if it is recovered and not discarded. Nothing in this ordinance or in 14 CCR, Division 7, Chapter 12 requires or authorizes the Recovery of Edible Food that does not meet the food safety requirements of the California Retail Food Code.

BB. "Enforcement Action" means an action of the City to address non-compliance with this ordinance including, but not limited to, issuing administrative citations, fines, penalties, or using other remedies.

CC. "Excluded Waste" means hazardous substance, hazardous waste, infectious waste, designated waste, volatile, corrosive, medical waste, infectious, regulated radioactive waste, and toxic substances or material that facility operator(s), which receive materials from the City and its generators, reasonably believe(s) would, as a result of or upon acceptance, transfer, processing, or disposal, be a violation of local, State, or Federal law, regulation, or ordinance, including: land use restrictions or conditions, waste that cannot be disposed of in Class III landfills or accepted at the facility by permit conditions, waste that in City's, or its Designee's reasonable opinion would present a significant risk to human health or the environment, cause a nuisance or otherwise create or expose City, or its Designee, to potential liability; but not including de minimis volumes or concentrations of waste of a type and amount normally found in Single-Family or Multi-Family Solid Waste after implementation of programs for the safe collection, processing, recycling, treatment, and disposal of batteries and paint in compliance with Sections 41500 and 41802 of the California Public Resources Code. Excluded Waste does not include used motor oil and filters, household batteries, universal wastes, and/or latex paint when such materials are defined as allowable materials for collection through the City's collection programs and the generator or customer has properly placed the materials for collection pursuant to instructions provided by City or its Designee for collection services.

DD. "Food Distributor" means a company that distributes food to entities including, but not limited to, Supermarkets and Grocery Stores, or as otherwise defined in 14 CCR Section 18982(a)(22).

EE. "Food Facility" has the same meaning as in Section 113789 of the Health and Safety Code.

FF. "Food Recovery" means actions to collect and distribute food for human consumption that otherwise would be disposed, or as otherwise defined in 14 CCR Section 18982(a)(24).

GG. "Food Recovery Organization" means an entity that engages in the collection or receipt of Edible Food from Commercial Edible Food Generators and distributes that Edible Food to

the public for Food Recovery either directly or through other entities or as otherwise defined in 14 CCR Section 18982(a)(25), including, but not limited to:

1. A food bank as defined in Section 113783 of the Health and Safety Code;

2. A nonprofit charitable organization as defined in Section 113841 of the Health and Safety code; and

3. A nonprofit charitable temporary food facility as defined in Section 113842 of the Health and Safety Code.

A Food Recovery Organization is not a Commercial Edible Food Generator for the purposes of this ordinance and implementation of 14 CCR, Division 7, Chapter 12 pursuant to 14 CCR Section 18982(a)(7).

If the definition in 14 CCR Section 18982(a)(25) for Food Recovery Organization differs from this definition, the definition in 14 CCR Section 18982(a)(25) shall apply to this ordinance would be disposed, or as otherwise defined in 14 CCR Section 18982(a)(24).

HH. "Food Recovery Service" means a person or entity that collects and transports Edible Food from a Commercial Edible Food Generator to a Food Recovery Organization or other entities for Food Recovery, or as otherwise defined in 14 CCR Section 18982(a)(26). A Food Recovery Service is not a Commercial Edible Food Generator for the purposes of this ordinance and implementation of 14 CCR, Division 7, Chapter 12 pursuant to 14 CCR Section 18982(a)(7).

II. "Food Scraps" means all food such as, but not limited to, fruits, vegetables, meat, poultry, seafood, shellfish, bones, rice, beans, pasta, bread, cheese, and eggshells. Food Scraps excludes fats, oils, and grease when such materials are Source Separated from other Food Scraps.

JJ. "Food Service Provider" means an entity primarily engaged in providing food services to institutional, governmental, Commercial, or industrial locations of others based on contractual arrangements with these types of organizations, or as otherwise defined in 14 CCR Section 18982(a)(27).

KK. "Food-Soiled Paper" is compostable paper material that has come in contact with food or liquid.

LL. "Grocery Store" means a store primarily engaged in the retail sale of canned food; dry goods; fresh fruits and vegetables; fresh meats, fish, and poultry; and any area that is not separately owned within the store where the food is prepared and served, including a bakery, deli, and meat and seafood departments, or as otherwise defined in 14 CCR Section 18982(a)(30).

MM. "Hauler Route" means the designated itinerary or sequence of stops for each segment of the City's collection service area, or as otherwise defined in 14 CCR Section 18982(a)(31.5).

NN. "High Diversion Organic Waste Processing Facility" means a facility that is in compliance with the reporting requirements of 14 CCR Section 18815.5(d) and meets or exceeds an annual average Mixed Waste organic content Recovery rate of fifty percent (50%) between January 1, 2022 and December 31, 2024, and seventy-five percent (75%) after January 1, 2025, as calculated pursuant to 14 CCR Section 18815.5(e) for Organic Waste received from the "Mixed waste organic collection stream" as defined in 14 CCR Section 17402(a)(11.5); or, as otherwise defined in 14 CCR Section 18982(a)(33).

OO. "Improved alley" means a public or private way that is twenty feet (20') or less in width which is paved and which the Director of Public Works has determined may be safely negotiated by solid waste collection vehicles.

PP. "Incidental waste" means up to one (1) cubic foot of refuse which is deposited at a location other than the business, residence or premises where generated.

QQ. "Inspection" means a site visit where City reviews records, containers, and an entity's collection, handling, recycling, or disposal of Organic Waste or Edible Food handling to determine if the entity is complying with requirements set forth in this ordinance, or as otherwise defined in 14 CCR Section 18982(a)(35).

RR. "Large Event" means an event, including, but not limited to, a sporting event or a flea

market, that may or may not charge an admission price, or is operated by a local agency, and serves an average of more than two thousand (2,000) individuals per day of operation of the event, at a location that includes, but is not limited to, a public, nonprofit, or privately owned park, parking lot, golf course, street system, or other open space when being used for an event. If the definition in 14 CCR Section 18982(a)(38) differs from this definition, the definition in 14 CCR Section 18982(a)(38) shall apply to this ordinance.

SS. "Large Venue" means a permanent venue facility that annually seats or serves an average of more than two thousand (2,000) individuals within the grounds of the facility per day of operation of the venue facility. For purposes of this ordinance and implementation of 14 CCR, Division 7, Chapter 12, a venue facility includes, but is not limited to, a public, nonprofit, or privately owned or operated stadium, amphitheater, arena, hall, amusement park, conference or civic center, zoo, aquarium, airport, racetrack, horse track, performing arts center, fairground, museum, theater, or other public attraction facility. For purposes of this ordinance and implementation of 14 CCR, Division 7, Chapter 12, a site under common ownership or control that includes more than one (1) Large Venue that is contiguous with other Large Venues in the site, is a single Large Venue. If the definition in 14 CCR Section 18982(a)(39) differs from this definition, the definition in 14 CCR Section 18982(a)(39) shall apply to this ordinance.

TT. "Litter receptacle" means any receptacle serviced by the City or designee that is placed on public property for incidental refuse, refuse or recycling generated as part of the routine use of public facilities.

UU. "Local Education Agency" means a school district, charter school, or county office of education that is not subject to the control of city or county regulations related to Solid Waste, or as otherwise defined in 14 CCR Section 18982(a)(40).

VV. "Manual collection" means solid waste collection service using a receptacle which requires manual moving and manual lifting by City personnel or its designee.

WW. "Mixed use" means a building, structure or premises occupied by or used by two (2) or more principal types of use, including but not limited to residential and commercial uses.

XX. "Mixed Waste Organic Collection Stream" or "Mixed Waste" means Organic Waste collected in a container that is required by 14 CCR Sections 18984.1, 18984.2 or 18984.3 to be taken to a High Diversion Organic Waste Processing Facility or as otherwise defined in 14 CCR Section 17402(a)(11.5).

YY. "Multi-Family Residential Dwelling" or "Multi-Family" means of, from, or pertaining to residential premises with five (5) or more dwelling units. Multi-Family premises do not include hotels, motels, or other transient occupancy facilities, which are considered Commercial Businesses.

ZZ. "MWELO" refers to the Model Water Efficient Landscape Ordinance (MWELO), LBMC Sections 21.42.035 and 21.42.060, as may be amended and updated by 23 CCR, Division 2, Chapter 2.7.

AAA. "Non-Compostable Paper" includes but is not limited to paper that is coated in a plastic material that will not breakdown in the composting process, or as otherwise defined in 14 CCR Section 18982(a)(41).

BBB. "Non-Local Entity" means entities that are not subject to the City's enforcement authority, or as otherwise defined in 14 CCR Section 18982(a)(42), including but not limited to federal facilities, including military installations, located within the boundaries of the City, including the Veterans Administration; and public universities (including community colleges) located within the boundaries of the City, including California State University Long Beach and Long Beach City College.

CCC. "Non-Organic Recyclables" means non-putrescible and non-hazardous recyclable wastes including but not limited to bottles, cans, metals, plastics and glass, or as otherwise defined by the City.

DDD. "Notice of Violation (NOV)" means a notice that a violation has occurred that includes a compliance date to avoid an action to seek penal-

ties, or as otherwise defined in 14 CCR Section 18982(a)(45) or further explained in 14 CCR Section 18995.4.

EEE. "Offal" means dead animals, parts of animals, animal byproducts and cooking grease.

FFF. "Organic Waste" means Solid Wastes containing material originated from living organisms and their metabolic waste products, including but not limited to food, green material, landscape and pruning waste, organic textiles and carpets, lumber, wood, Paper Products, Printing and Writing Paper, manure, biosolids, digestate, and sludges or as otherwise defined in 14 CCR Section 18982(a)(46). Biosolids and digestate are as defined by 14 CCR Section 18982(a). This definition should not be referred to for purposes of determining what may be placed in a Source-Separated Organic Waste Container.

GGG. "Organics Waste Container" means any receptacle(s) provided by the City or authorized agent(s) for the storage and collection of Source-Separated Organic Waste.

HHH. "Organic Waste Generator" means a person or entity that is responsible for the initial creation of Organic Waste, or as otherwise defined in 14 CCR Section 18982(a)(48).

III. "Paper Products" include, but are not limited to, paper janitorial supplies, cartons, wrapping, packaging, file folders, hanging files, corrugated boxes, tissue, and toweling, or as otherwise defined in 14 CCR Section 18982(a)(51).

JJJ. "Printing and Writing Papers" include, but are not limited to, copy, xerographic, watermark, cotton fiber, offset, forms, computer printout paper, white wove envelopes, manila envelopes, book paper, note pads, writing tablets, newsprint, and other uncoated writing papers, posters, index cards, calendars, brochures, reports, magazines, and publications, or as otherwise defined in 14 CCR Section 18982(a)(54).

KKK. "Prohibited Container Contaminants" mean:

1. Three-container or three-plus-container collection service: "Prohibited Container Contaminants" means the following: (i) discarded materials placed in the Source Separated Recycling Container that are not identified as acceptable Source Separated Recyclable Materials for the City's Container; (ii) discarded materials placed in the Source-Separated Organics Container that are not identified as acceptable Source Separated Organic Waste for the City's Container; (iii) discarded materials placed in the Refuse Container that are acceptable Source Separated Recyclable Materials and/or Source Separated Organic Wastes to be placed in City's Container(s); and, (iv) Excluded Waste placed in any container.

2. Two-container collection service for Source Separated Organic Waste and mixed materials: "Prohibited Container Contaminants" means the following: (i) discarded materials placed in a Source-Separated Organic Waste Container that are not identified as acceptable Source Separated Organic Waste for the City's Container; (ii) discarded materials placed in the Refuse Container that are identified as acceptable Source Separated Organic Waste, which are to be separately collected in City's Organic Waste Container; and, (iii) Excluded Waste placed in any container.

3. Two-container collection service for Source Separated Recyclable Materials and mixed materials: "Prohibited Container Contaminants" means the following: (i) discarded materials placed in a Source-Separated Recyclable Container that are not identified as acceptable Source Separated Recyclable Materials for City's Container; (ii) discarded materials placed in the Refuse Container that are identified as acceptable Source Separated Recyclable Materials, which are to be separately collected in City's Container; and, (iii) Excluded Waste placed in any container.

4. One-container collection service: "Prohibited Container Contaminants" means Excluded Waste placed in any container.

LLL. "Receptacle" means any container approved by the Director of Public Works or designee for removing and conveying refuse, recyclable or organic materials.

MMM. "Recovered Organic Waste Products" means products made from California, landfill/incineration-diverted recovered Organic Waste pro-

cessed in a permitted or otherwise authorized facility, or as otherwise defined in 14 CCR Section 18982(a)(60).

NNN. "Recovery" means any activity or process described in 14 CCR Section 18983.1(b), or as otherwise defined in 14 CCR Section 18982(a)(49).

OOO. "Recyclables" means materials designated by the Director of Public Works for source separation, collection and recycling pursuant to the California Integrated Waste Management Act of 1989 (AB 939).

PPP. "Recycled-Content Paper" means Paper Products and Printing and Writing Paper that consists of at least thirty percent (30%), by fiber weight, postconsumer fiber, or as otherwise defined in 14 CCR Section 18982(a)(61).

QQQ. "Recycling bins" means any receptacle(s) provided by the City or an authorized agent for the source separation and collection of recyclable materials which are designated by the Director of Public Works.

RRR. "Recycling service" means the collection, processing and marketing of materials designated by the City or its agent from accounts designated by the Director of Public Works.

SSS. "Refuse" means all noninfectious and nonhazardous material accumulating or resulting from the use, pre-occupancy or occupancy of buildings, premises, dwellings, lots or parcels.

TTT. "Refuse Container" means a container used for the storage and collection of Refuse.

UUU. "Refuse Container Waste" means all noninfectious and nonhazardous material accumulating or resulting from the use, pre-occupancy or occupancy of buildings, dwellings, lots or parcels, not including Recyclables or Organic Waste.

VVV. "Refuse not collected by the City" includes material not compatible with the City's Southeast Resource Recovery Facility (SERRF) operation and/or materials designated by the Director of Public Works. This includes but is not limited to: infectious waste, hazardous waste, noncombustible construction/demolition debris, large metal items, lead acid batteries, other noncombustible materials, materials from industrial and manufacturing processes, food processing wastes or large quantities of condemned food products, explosives, liquids, offal and any substances such that exposure to them may pose a threat to human health or the environment.

WWW. "Regional Agency" means regional agency as defined in Public Resources Code Section 40181.

XXX. "Regional or County Agency Enforcement Official" means a regional or county agency enforcement official, designated by the City with responsibility for enforcing the ordinance in conjunction or consultation with City Enforcement Official.

YYY. "Remote Monitoring" means the use of the internet of things (IoT) and/or wireless electronic devices to visualize the contents of containers for purposes of identifying the quantity of materials in containers (level of fill) and/or presence of Prohibited Container Contaminants.

ZZZ. "Renewable Gas" means gas derived from Organic Waste that has been diverted from a California landfill and processed at an in-vessel digestion facility that is permitted or otherwise authorized by 14 CCR to recycle Organic Waste, or as otherwise defined in 14 CCR Section 18982(a)(62).

AAAA. "Restaurant" means an establishment primarily engaged in the retail sale of food and drinks for on-premises or immediate consumption, or as otherwise defined in 14 CCR Section 18982(a)(64).

BBBB. "Roll-out service" means the movement by City personnel or its agent of any refuse, organics or recycling receptacle which is not immediately adjacent to public streets or alleys.

CCCC. "Route Review" means a visual Inspection of containers along a Hauler Route for the purpose of determining Container Contamination, and may include mechanical Inspection methods such as the use of cameras, or as otherwise defined in 14 CCR Section 18982(a)(65).

DDDD. "SB 1383" means Senate Bill 1383 of 2016 approved by the Governor on September 19, 2016, which added Sections 39730.5, 39730.6, 39730.7, and 39730.8 to the Health and Safety Code, and added Chapter 13.1 (commencing with

Section 42652) to Part 3 of Division 30 of the Public Resources Code, establishing methane emissions reduction targets in a Statewide effort to reduce emissions of short-lived climate pollutants as amended, supplemented, superseded, and replaced from time to time.

EEEE. "SB 1383 Regulations" or "SB 1383 Regulatory" means or refers to, for the purposes of this ordinance, the Short-Lived Climate Pollutants: Organic Waste Reduction regulations developed by CalRecycle and adopted in 2020 that created 14 CCR, Division 7, Chapter 12 and amended portions of regulations of 14 CCR and 27 CCR.

FFFF. "Self-Hauler" means a person, who hauls Solid Waste, Organic Waste or recyclable material he or she has generated to another person. Self-hauler also includes a person who backhauls waste, or as otherwise defined in 14 CCR Section 18982(a)(66). Back-haul means generating and transporting Organic Waste to a destination owned and operated by the generator using the generator's own employees and equipment, or as otherwise defined in 14 CCR Section 18982(a)(66)(A).

GGGG. "Semi-automated collection" means collection service using a cart which may require manual moving but no manual lifting by City personnel.

HHHH. "Single-Family" means of, from, or pertaining to any residential premises with fewer than five (5) units.

IIII. "Single-family dwelling" means any dwelling containing only one (1) dwelling unit located on a single lot or parcel.

JJJJ. "Solid Waste" has the same meaning as defined in State Public Resources Code Section 40191, which defines Solid Waste as all putrescible and nonputrescible solid, semisolid, and liquid wastes, including garbage, trash, refuse, paper, rubbish, ashes, industrial wastes, demolition and construction wastes, abandoned vehicles and parts thereof, discarded home and industrial appliances, dewatered, treated, or chemically fixed sewage sludge which is not hazardous waste, manure, vegetable or animal solid and semi-solid wastes, and other discarded solid and semisolid wastes, with the exception that Solid Waste does not include any of the following wastes:

1. Hazardous waste, as defined in the State Public Resources Code Section 40141.

2. Radioactive waste regulated pursuant to the State Radiation Control Law Chapter 8 (commencing with Section 114960) of Part 9 of Division 104 of the State Health and Safety Code).

3. Medical waste regulated pursuant to the State Medical Waste Management Act (Part 14 (commencing with Section 117600) of Division 104 of the State Health and Safety Code). Untreated medical waste shall not be disposed of in a Solid Waste landfill, as defined in State Public Resources Code Section 40195.1. Medical waste that has been treated and deemed to be Solid Waste shall be regulated pursuant to Division 30 of the State Public Resources Code.

KKKK. "Source separated" means materials, including commingled recyclable materials, that have been separated or kept separate from the Solid Waste stream, at the point of generation, for the purpose of additional sorting or processing those materials for recycling or reuse in order to return them to the economic mainstream in the form of raw material for new, reused, or reconstituted products, which meet the quality standards necessary to be used in the marketplace, or as otherwise defined in 14 CCR Section 17402.5(b)(4). For the purposes of the ordinance, Source Separated shall include separation of materials by the generator, property owner, property owner's employee, property manager, or property manager's employee into different containers for the purpose of collection such that Source Separated materials are separated from Refuse Container Waste/Mixed Waste or other Solid Waste for the purposes of collection and processing.

LLLL. "Source-Separated Recycling Container" means any receptacle(s) provided by the City or its designee for the storage and collection of Source-Separated Recyclable Materials which are designated by the Director of Public Works.

MMMM. "Source Separated Recyclable Container Organic Waste" means Source Separated

Organic Wastes that can be placed in a Recyclable Container that is limited to the collection of those Organic Wastes and Non-Organic Recyclables, such as Paper Products and Printing and Writing Paper, as defined in Section 18982(a)(43), or as otherwise defined by Section 17402(a)(18.7).

NNNN. "Source Separated Green Container Organic Waste" means Source Separated Organic Waste that can be placed in a Green Container that is specifically intended for the separate collection of Organic Waste by the generator, excluding Source Separated Recyclable Container Organic Waste, carpets, Non-Compostable Paper, and textiles.

OOOO. "Source Separated Recyclable Materials" means Source Separated Non-Organic Recyclables and Source Separated Recyclable Container Organic Waste.

PPPP. "State" means the State of California.

QQQQ. "Street sweeping debris" means material collected by City street sweeping vehicles or like mechanisms.

RRRR. "Sufficient capacity" means able to contain all the refuse, recyclables, and organics in a manner which prevents such material from dropping on the ground, being blown from the container, or otherwise causing a nuisance.

SSSS. "Supermarket" means a full-line, self-service retail store with gross annual sales of two million dollars ($2,000,000) or more, and which sells a line of dry grocery, canned goods, or non-food items and some perishable items, or as otherwise defined in 14 CCR Section 18982(a)(71).

TTTT. "Tier One Commercial Edible Food Generator" means a Commercial Edible Food Generator that is one of the following:

1. Supermarket.

2. Grocery Store with a total facility size equal to or greater than ten thousand (10,000) square feet.

3. Food Service Provider.

4. Food Distributor.

5. Wholesale Food Vendor.

If the definition in 14 CCR Section 18982(a)(73) of Tier One Commercial Edible Food Generator differs from this definition, the definition in 14 CCR Section 18982(a)(73) shall apply to this ordinance.

UUUU. "Tier Two Commercial Edible Food Generator" means a Commercial Edible Food Generator that is one of the following:

1. Restaurant with two hundred fifty (250) or more seats, or a total facility size equal to or greater than five thousand (5,000) square feet.

2. Hotel with an on-site Food Facility and two hundred (200) or more rooms.

3. Health facility with an on-site Food Facility and one hundred (100) or more beds.

4. Large Venue.

5. Large Event.

6. A State agency with a cafeteria with two hundred fifty (250) or more seats or total cafeteria facility size equal to or greater than five thousand (5,000) square feet.

7. A Local Education Agency facility with an on-site Food Facility.

If the definition in 14 CCR Section 18982(a)(74) of Tier Two Commercial Edible Food Generator differs from this definition, the definition in 14 CCR Section 18982(a)(74) shall apply to this ordinance.

VVVV. "Uncontainerized Green Waste and Yard Waste Collection Service" or "Uncontainerized Service" means a collection service that collects green waste and yard waste that is placed in a pile or bagged for collection on the street in front of a generator's house or place of business for collection and transport to a facility that recovers Source Separated Organic Waste, or as otherwise defined in 14 CCR Section 189852(a)(75).

WWWW. "Unimproved alley" means any public or private way which is twenty feet (20') or less in width and is not paved or which the Director of Public Works has determined cannot be safely negotiated by refuse, recycling, or organics collection vehicles.

XXXX. "Use" means the purpose for which land or a building is occupied, arranged, designed or intended, or for which either land or building is

or may be occupied or maintained. Use also means the activity conducted on the land or in the building.

YYYY. "Waste" means nonhazardous, noninfectious materials generated from the occupancy or pre-occupancy of a dwelling, commercial building lot or parcel including but not limited to organic and inert solid, semi-solid and liquid waste.

ZZZZ. "Wholesale Food Vendor" means a business or establishment engaged in the merchant wholesale distribution of food, where food (including fruits and vegetables) is received, shipped, stored, prepared for distribution to a retailer, warehouse, distributor, or other destination, or as otherwise defined in 14 CCR Section 189852(a)(76). (ORD-21-0040 § 2, 2021; Ord. C-7601 § 23, 1999; Ord. C-7330 § 1, 1995: Ord. C-7057 § 1, 1992: C-5595 § 1 (part), 1980: prior code § 5220)

8.60.020 Adequate receptacles or bins required.

A. All property owners or occupants utilizing solid waste receptacles shall have the number of receptacles or bins with sufficient capacity necessary to contain their solid waste in compliance with City ordinances and the Health and Safety Code.

B. It shall be the duty of every account to provide, maintain and use receptacles for solid waste collection service in accordance with the type, quantity and conditions set forth in Sections 8.60.020 through 8.60.370 in the manner provided by this Chapter. The terms of Sections 8.60.020 through 8.60.070 shall not apply to any tenant occupying any real estate in the City, the owner of which provides and maintains, as prescribed in this Chapter, receptacles for holding waste, or who provides and maintains, in accordance with the terms of this Chapter, a solid waste collection service with a solid waste enterprise licensed and permitted to remove or convey waste within the City.

C. Property owners or occupants utilizing plastic trash bags for refuse collection only, must do so in accordance with Subsection 8.60.025.D and shall store such bags, when in use and when filled, in a sanitary manner so as to minimize odor and vector problems.

D. Any account in the City will be advised in writing by the Director of Public Works to increase their levels of service by obtaining additional receptacles or arranging for more frequent collection. If the Director of Public Works determines that overflowing or otherwise non-contained solid waste continues to create a nuisance or a threat to public health or safety after written notification to the account, or to the property owner and occupant, the Director shall either provide sufficient containers and collection and bill the account in accord with the schedule of fees adopted by the City Council, or refer the matter to the appropriate City department for further action.

E. City-serviced accounts designated by the Director of Public Works for automated or semi-automated collection shall only use solid waste carts and bins obtained from the City. Carts and bins shall be provided and repaired or replaced by the City. Carts, bins and their components so furnished shall remain the property of the City.

F. Account holders as shown in the City's utility billing records shall have the option of requesting additional carts or bins or exchanging the carts for a different size based on available City inventory. Carts shall not be exchanged more than once every six (6) months. Exchange fees shall be established in accordance with Section 8.60.190.

G. Each refuse transportation permit holder shall be responsible to comply with each requirement set forth in Subsections 8.60.020.A through 8.60.020.D and 8.60.370.C of this Chapter for each account or property it services within the City. Failure to comply with these requirements shall be a violation of the terms and conditions of the refuse transportation permit as set forth in Section 8.60.088. (ORD-21-0040 § 3, 2021; Ord. C-7601 § 2, 1999: Ord. C-7057 § 2, 1992: Ord. C-5595 § 1 (part), 1980: prior code § 5220.1(a))

8.60.025 Receptacles—Specifications.

All solid waste receptacles utilized within the City for removing and conveying waste shall be acceptable to the Director of Public Works and shall conform to the following specifications:

A. City-serviced accounts designated by the Director of Public Works for automated or semi-automated collection shall:

1. Only use carts and bins provided by the City or its agent;

2. Fill each cart so that its weight when loaded does not exceed two hundred fifty (250) pounds and so that the lid is fully closed when placed for collection.

B. City-serviced accounts designated by the Director of Public Works for commercial service shall:

1. Utilize carts or bins provided by the City or provide, utilize and maintain commercial bins that meet specifications set by the Director of Public Works. For the purposes of this Chapter, the volume of a standard two cubic yard commercial bin shall be equal to five (5) one hundred (100) gallon carts;

2. Utilize structurally sound, watertight receptacles;

3. Have four (4) operative wheels that allow for a one-person movement of the receptacle when loaded;

4. Have sufficient drainage or a plug utilized for drainage;

5. Utilize a lid that prevents contents from escaping;

6. Plainly and visibly display the service location address on each commercial receptacle. Characters shall be at least four inches (4") high;

7. Plainly and visibly display signage banning the illegal disposal of hazardous, infectious and liquid waste;

8. Utilize containers that weigh not more than one thousand two hundred fifty (1,250) pounds when loaded;

9. Stow all waste in a manner that will prevent contents escaping therefrom;

10. Stow all waste in appropriate receptacle in a manner that rain will not increase a receptacle's weight beyond capacity;

11. Clean the inside and outside of receptacles as necessary to maintain sanitary conditions and keep receptacles free of graffiti; and

12. Comply with all color and label requirements as stated in 8.60.370.4.

C. City-serviced accounts designated by the Director of Public Works for manual collection shall:

1. Utilize receptacles made of waterproof material, the interior of which shall be smooth with no projections;

2. Have a diameter not less than eighteen inches (18") nor greater than twenty-four inches (24"), the top diameter of which shall in no case be less than any diameter below the top with nothing attached to the exterior other than acceptable handles;

3. Utilize a removable waterproof cover or lid to prevent rain from increasing a receptacle's loaded weight beyond capacity;

4. Stow all waste in a manner that prevents contents escaping therefrom;

5. Utilize receptacles that have a capacity not less than thirty (30) nor more than fifty (50) gallons, weighing not more than twenty (20) pounds when empty nor more than sixty (60) pounds when loaded; and

6. Comply with all color and label requirements as stated in 8.60.370.4.

D. Heavy-duty double-strength plastic bags are acceptable for refuse collection only with the following restrictions:

1. Bags shall be securely tied;

2. Bags shall not contain sharp objects such as branches, sticks, glass, etc., which may cause the bag to puncture or cause injury to collection personnel;

3. Bags shall not contain refuse weighing more than twenty-five (25) pounds;

4. Property owners or occupants with manual collection are required to utilize a minimum of

one (1) standard refuse receptacle per account specified under Subsection 8.60.025.C of this Section to hold refuse not acceptable in plastic bags;

5. Property owners or occupants shall be responsible for the condition of all plastic bags used and the materials contained therein until the bag(s) and contents have been conveyed by the City or private refuse crews;

6. Property owners or occupants with automated/semi-automated and commercial bin collection service shall place all plastic bags inside the cart(s) or commercial bin(s); and

7. Approved bags may be utilized for Organics collection if permitted by the hauler or the City. Check list of accepted materials from the City or Private Hauler prior to use.

E. All waste receptacles must have watertight lids to prevent the breeding of vectors and to contain debris and litter. Such lid shall remain closed and fit tightly over the receptacle at all times and shall be easily and quickly opened but the same shall not be opened except when necessary to place waste in such receptacle or to remove waste therefrom.

F. Receptacles that do not comply with the specifications and requirements as stipulated in the above Subsections shall be noticed and will be considered as refuse and removed as refuse if they do not comply by the next regular collection day. Receptacles and their contents so removed shall be subject to special service fees pursuant to Section 8.60.190.

G. Solid waste enterprises, recyclers and any contractor collecting, removing or conveying waste shall comply with the requirements of Subsections 8.60.025.A through 8.60.025.E according to the type of service they provide. In addition to these requirements and those set forth in Sections 8.60.087 and 8.60.370, solid waste enterprises, recyclers and any contractor collecting, removing or conveying waste shall:

1. Plainly and visibly display the name and operational phone number of the business providing service on all receptacles. Characters are to be at least four inches (4") high;

2. Plainly and visibly display signage banning the stowing of hazardous, infectious and liquid waste on the receptacle(s);

3. Plainly and visibly display what material is allowed and not allowed in the receptacle per the requirements of Section 8.60.370;

4. Keep waste receptacles graffiti-free at all times; and

5. Utilize receptacles approved by the Director of Public Works. (ORD-21-0040 § 4, 2021; Ord. C-7601 § 3, 1999: Ord. C-7330 § 2, 1995; Ord. C-7057 § 3, 1992: Ord. C-5595 § 1 (part), 1980: prior code § 5220.1(b))

8.60.030 City receptacles—Additional requirements.

A. Property owners or occupants provided with refuse and/or recycling receptacles by the City shall:

1. Not paint, mark or deface the receptacles in any way;

2. Report damaged, lost or stolen receptacles to the Department of Public Works within seventy-two (72) hours of notice of occurrence;

3. Be charged for the repair or replacement of receptacles if damaged, lost or stolen because of property owner or occupant negligence. A replacement fee will be charged to the account according to Section 8.60.190;

4. Clean the inside and outside of the receptacle(s) as necessary to maintain sanitary conditions and keep receptacle(s) free from graffiti;

5. Mark the street address of the account serviced on all receptacles supplied by the City within the space provided. (Ord. C-7601 § 4, 1999: Ord. C-7057 § 20, 1992)

8.60.040 Green waste.

A. Property owners or occupants with automated or semi-automated and commercial collection service shall place all tree limbs, shrubs, trimmings, grass clippings and other items of a similar nature inside the receptacle in such a manner that items do not protrude from the receptacle.

B. Property owners or occupants in areas designated by the Director of Public Works for man-

ual collection shall tie all tree limbs, shrubs, trimmings and other green waste of a similar nature in compact bundles for disposal. Such bundles shall not exceed four feet (4') in length nor forty (40) pounds in weight and need not be placed in a container. (Ord. C-7601 § 5, 1999: Ord. C-7057 § 4, 1992: Ord. C-5595 § 1 (part), 1980: prior code § 5220.1(c))

8.60.050 Waste requiring special handling.

A. Material likely to become airborne upon disposal shall be securely wrapped. This includes, but is not limited to: ashes or dust from vacuum cleaners, barbecues, fireplaces, litter boxes, sawdust and garbage.

B. Accounts requiring special pickup service for bulky items which require special handling such as tires, large appliances and furniture shall contact the Department of Public Works refuse collection service to arrange for pickup prior to placing such items out for collection. Charges for such service shall be implemented and collectable pursuant to Sections 8.60.190 and 8.60.200 of this Municipal Code.

C. No material other than Municipal solid waste shall be placed in any refuse receptacle within the City. The Director of Public Works is authorized to place additional limits on types and quantities of waste which may be placed in City-serviced refuse receptacles when the Director determines that such a restriction is necessary to protect the health and safety of City employees or the general public, or to comply with State or Federal laws or regulations.

D. Refuse not collected by the City shall be removed, conveyed and properly disposed of at a properly licensed disposal site by a solid waste enterprise licensed and permitted to remove or convey such materials in the City, pursuant to all applicable laws and regulations and the provisions of this Chapter. (Ord. C-7601 § 6, 1999: Ord. C-7057 § 5, 1992: Ord. C-5595 § 1 (part), 1980: prior code § 5220.1(d))

8.60.060 Placement of solid waste receptacles for collection.

Property owners or occupants with automated or semi-automated and commercial collection shall place all Solid Waste in the carts provided by the City or commercial bins approved by the Director of Public Works. Each solid waste receptacle shall be placed for collection in the following manner unless directed otherwise by the Director of Public Works:

A. For automated collection, where there is no alley or unimproved alley, carts shall be placed in front of the premises where generated, in the gutter with wheels against the curb and the arrow on the receptacle lid facing into the street.

B. For semi-automated collection, where there is an improved alley designated for alley collection, carts shall be placed for collection on a hard, level surface, on the premises where generated, immediately adjacent to the alley.

C. For manual collection (with approved receptacles as provided in Sections 8.60.030 through 8.60.050):

1. Where there is no alley or unimproved alley, receptacles and bundles shall be placed on the curb or parkway in front of the premises where generated; and

2. Where there is an improved alley that is designated for alley collection, receptacles and bundles shall be placed for collection on the premises where generated, immediately adjacent to the alley.

D. The following additional requirements shall apply to commercial solid waste collection service:

1. Commercial and business enterprises, offices, office buildings, government facilities, churches, schools, or dwellings with over four (4) dwelling units that have a storage area meeting Building Code requirements may use a commercial bin for solid waste collection service;

2. Accounts using a commercial bin for City solid waste collection service shall place the bin immediately adjacent to the improved alley or at the curb in front of the premises accessible to City crews as approved by the Director of Public Works and in compliance with Section 8.60.070;

3. Commercial bins placed in an improved alley shall be placed on a hard level surface;

4. Commercial bins placed at the curb or parkway shall be placed in the gutter with the spindles (lifting arms) against the curb;

5. Carts shall be used in lieu of commercial bins where designated by the Director of Public Works;

6. Persons utilizing City commercial solid waste service shall place for collection only the total number of bins and/or carts previously established for the account; and

7. The City shall retain the right to place a sticker on all commercial bins and carts used for City collection to show authorized day(s) of service and container capacity.

E. Residential recycling program service:

1. Recycling bins shall be placed for collection in the same location and on the same dates and times as for refuse receptacles, unless otherwise specified by the Director of Public Works;

2. Recyclable materials shall be stored in recycling bins in such a manner as to minimize vector control problems; and

3. Recyclables are not allowed to be placed inside a plastic bag for collection. Material should be unbagged or loose in a paper bag.

F. Organics program service:

1. Organics bins shall be placed for collection in the same location and on the same dates and times for refuse receptacles, unless otherwise specified by the Director of Public Works; and

2. Organics shall be stored in organics bins in such a manner as to minimize vector control problems.

G. When possible, carts, commercial bins, and manual solid waste receptacles shall not have any obstructions in front or within two feet (2') of sides and top of receptacles. Two feet (2') of space shall be maintained between carts. Each type of container (Refuse, Recycling, Organics) shall be placed together at least two feet (2') from all carts and bins.

H. The Director of Public Works or designee may specify other locations for the placement of receptacles where such placement will expedite collection or enhance the safety of collection operation, or benefit the public health and safety. (ORD-21-0040 § 5, 2021; Ord. C-7601 § 7, 1999: Ord. C-7057 § 6, 1992: Ord. C-5595 § 1 (part), 1980: prior code § 5220.1(e))

8.60.070 Time of placement for collection.

Each receptacle or bundle shall be placed for collection not earlier than the evening preceding, nor later than six a.m. on the day of regular collection. Receptacles placed at the curb shall be removed within twelve (12) hours after the refuse has been collected. (Ord. C-5595 § 1 (part), 1980: prior code § 5220.1(f))

8.60.080 Refuse transportation permit—Required.

A. Any person who intends to remove or convey any nonhazardous, noninfectious refuse for hire within the City shall first apply for and receive a permit in writing from the Director of Public Works in accordance with the applicable provisions of this Chapter 8.60.

B. There shall be two (2) classes of refuse transportation permits:

1. Recycling Permit: For the removing or conveying of nonhazardous, noninfectious source separated materials, with less than ten percent (10%) nonrecyclable waste, as a part of the recovery/recycling process; and

2. General permit: For the removing or conveying of all other nonhazardous, noninfectious solid waste not subject to either of the first two (2) classes of permits.

C. The provisions of this Section shall not apply to:

1. Any person employed by the City; and

2. Persons performing work requiring a permit pursuant to this Chapter, under contract to provide service for a program funded from the general fund of the City, which persons shall be exempt from any fee otherwise required pursuant to Section 8.60.082 but shall otherwise comply with all requirements applicable to refuse transportation. A written exemption shall be requested and received in advance from the Director of Pub-

lic Works. (Ord. C-7330 § 3, 1995; Ord. C-7223 § 1, 1994: Ord. C-6975 §§ 1, 2, 1992; Ord. C-6922 § 1, 1991: Ord. C-5595 § 1 (part), 1980: prior code § 5220.2)

8.60.081 Insurance.

The applicant for a refuse transportation permit shall provide, at the time of application for the permit, and shall maintain throughout the term of the permit insurance as prescribed in regulations issued by the City Manager pursuant to Section 2.84.040. The permit shall not be effective until the City has received proof of such insurance. (Ord. C-7934 § 15, 2004: Ord. C-7601 § 8, 1999: Ord. C-6975 § 6, 1992)

8.60.082 Refuse transportation permit—Application and renewal.

A. An application for a refuse transportation permit shall be submitted to the Director of Public Works or designee on a form to be furnished by the Department of Public Works and shall be accompanied by a nonrefundable application fee as determined by the City Council. The applicant shall furnish all information reasonably required by the Director to enable the Director to act on the application which information may include, but need not be limited to:

1. The name, address and telephone number of the applicant, including all names of the business entities involved;

2. The names, addresses and telephone numbers of all of applicant's subcontractors operating under the permit, if any;

3. The number of vehicles and corresponding vehicle registration and license plate numbers for all vehicles to be operated by the applicant within the City;

4. A copy of the applicant's business license and all other applicable licenses or permits;

5. Proof of insurance furnished or to be furnished pursuant to Section 8.60.081;

6. Such other information as may be reasonably required by the City.

B. The application shall be reviewed and processed in accordance with procedures established from time to time by the Director of Public Works. A permit may be denied for failure to comply with any of the provisions of this Chapter.

C. The City Council may establish an annual refuse transportation fee by resolution in an amount sufficient to reimburse the City for the actual costs of administering the refuse transportation permit program. (Ord. C-7601 § 9, 1999: Ord. C-7057 § 7, 1992: Ord. C-6975 § 3, 1992; Ord. C-6922 § 3, 1991)

8.60.084 Permit issuance and term.

A. After determining that an applicant for a refuse transportation permit is fully compliant with the provisions of this Chapter and all other applicable provisions of law, the Director of Public Works shall issue the appropriate refuse transportation permit. Such permit may contain additional administrative provisions as deemed necessary by the Director of Public Works to carry out his duties under this Chapter.

B. The initial permit so issued shall expire at midnight (12:00 a.m.) of June 30 next following initial issuance.

C. Thereafter, the term of the permit shall be for one (1) year, provided that the Director shall grant annual renewal if the permittee demonstrates that it is in full compliance with all applicable laws and regulations, including, but not limited to the provisions of this Chapter. (Ord. C-7601 § 10, 1999: Ord. C-6922 § 4, 1991)

8.60.085 Display of permits—Identification of vehicles and receptacles.

A. The Director of Public Works shall issue a permit and a decal or decals to each permittee.

B. A legible copy of the refuse transportation permit, along with a legible copy of the business license, and all other applicable permits and licenses, shall be kept in each vehicle of the permittee and be made available for inspection immediately upon request by any authorized representative of the City.

C. Every person using a vehicle to remove or convey waste shall display a decal in a manner so as to be plainly visible and permanently affixed in

the lower right-hand corner (passenger side) of the front windshield of each vehicle operated within the City by the permittee.

D. Each permittee shall place and maintain on each vehicle and receptacle used for collecting or transporting refuse or recyclables the permittee's name and operational phone number. Such information shall be plainly visible using lettering not less than four inches (4") in height. (Ord. C-7601 § 24, 1999)

8.60.086 Reporting requirements.

A. Monthly reporting. Every holder of any class of refuse transportation permit shall maintain a written record and make a monthly report to the Director of Public Works of refuse and recyclables purchased, received or collected. The report and applicable fees shall be delivered to the City no later than ninety (90) days after the first of the month for which collection service was provided, and shall contain all information reasonably required by the Director of Public Works to determine compliance with the Municipal Code and with the Integrated Waste Management Act of 1989 (commonly known as "A.B. 939"), as it may be amended from time to time and to verify the permittee's calculation of fees owed by permittee.

B. Annual recycling report. Every holder of any class of refuse transportation permit shall, not later than the first business day of April, submit an annual report for the previous calendar year. The City Council may establish a schedule of fees to be submitted with such reports, based on rates of waste diversion, by resolution.

C. The Director of Public Works or designee may audit, during normal business hours of the permittee being audited, any and all records of a permittee reasonably necessary to enable the Director to determine the accuracy of the reports furnished pursuant to Subsections 8.60.086.A or 8.60.086.B of this Section and compliance with this Chapter. (Ord. C-7601 § 11, 1999: Ord. C-6922 § 5, 1991)

8.60.087 Operating requirements for permittees.

A. Each permittee shall:

1. Provide waste receptacles or bins of sufficient capacity and quantity so as to contain all refuse generated by an account;

2. Be responsible for the collection and disposal of overflow refuse around receptacles. Following the collection of refuse or the emptying of waste receptacles, the area where the refuse was placed for collection shall be left free of refuse, litter, liquid waste and other debris;

3. Provide bulky item collection service for each account. The permittee is responsible for the removal and proper disposal of all bulky items placed for collection for each account it services. The permittees shall remove such items within forty-eight (48) hours of servicing an account or receiving a request for collection from the account or from the City. Each permittee shall maintain a log of such requests for bulky item collection and make such log available for inspection by the Director of Public Works;

4. Comply with monthly and annual reporting requirements as established by the Director of Public Works;

5. Provide a recycling program as set forth in Section 8.60.087.5;

6. Execute and maintain in effect a commercial franchise agreement with the City, as a permit condition, for the use of streets, highways or roads in the City of Long Beach for the conduct of its business activity. The City hereby grants a solid waste hauling franchise to any solid waste enterprise upon the issuance to it of a permit issued pursuant to Section 8.60.80 of this Chapter. The term of the franchise shall run concurrently with the term of the permit and shall end upon termination of the permit. The valid possession of such a permit shall be deemed to make a solid waste enterprise a franchisee under this Section; and

7. Pay a franchise fee, known as the "refuse hauler business fee", in an amount established by the City Council by resolution.

B. The failure of any permittee to comply with the requirements of Subsections 8.60.087A.1.

through 8.60.087A.3., shall subject the permittee to a service charge equivalent to the City's costs of providing such services, including all administrative costs, as determined by the City Council by resolution. The failure of any permittee to comply with any requirement of Subsection 8.60.087.A. may also result in the suspension or revocation of the refuse transportation permit.

C. All permittees providing solid waste collection services shall comply with the Americans With Disabilities Act (42 U.S.C. 12101 et seq.), as it may be amended from time to time.

D. Nothing in this Section shall excuse compliance with any other Municipal Code section, nor any other applicable law or regulation. (ORD-09-0033 § 1, 2009; Ord. C-7601 § 12, 1999: Ord. C-7057 § 8, 1992: Ord. C-6975 § 4, 1992; Ord. C-6922 § 6, 1991)

8.60.087.5 Automatic enrollment in Recycling and Organics program.

Each permittee shall automatically enroll accounts into the organics and recycling programs. Permittees to implement a recycling and organics program as approved by the Director of Public Works, or designee. (ORD-21-0040 § 6, 2021; ORD-09-0033 § 2, 2009; Ord. C-7601 § 25, 1999)

8.60.088 Suspension or revocation of permits—Cause.

No person shall remove or convey any refuse for hire within the City after a permit for such activity has been revoked or during the time such a permit has been suspended. Grounds for suspension or revocation of a permit shall include, but are not limited to the following:

A. Failure to comply with any of the provisions of this Chapter.

B. Failure to pay in a timely manner any fees imposed by the City.

C. Failure to accurately report under, or comply with any lawful order issued pursuant to California Public Resources Code § 41821.

D. Intentional misstatement of tonnage and origins of refuse collected or transported.

E. Conviction of any violation of any State or federal law in any way related to the collection, transportation or disposal of any waste. (Ord. C-7601 § 13, 1999: Ord. C-7330 § 4, 1995: Ord. C-6922 § 7, 1991)

8.60.089 Illegal haulers, default and impoundment.

A. Failure to acquire and maintain a valid permit shall constitute default and provide the City cause to initiate default proceedings as described in this Section.

B. The City shall notify any person failing to comply with all requirements of this Chapter, in writing, of any default or violation, and shall specify in the notice the date and time by which operations must cease. If the person or permittee fails or refuses to comply, the City shall have the right to remove the bin or box or other refuse receptacle or hauling vehicle without further notice. The person or permittee shall reimburse the City for any expense incurred by the City in removing the receptacle or hauling vehicle, including but not limited to costs of removal and storage. After thirty (30) days the City shall sell, recycle or otherwise dispose of property as stipulated in Section 14.06.140 of this Code. Should the permittee or person continue to operate after permit termination or notification and should the City file suit to restrain the operation, the permittee or person shall reimburse the City for its reasonable costs and expenses in connection therewith, including reasonable Attorney's fees.

C. Each subsequent incident of violation described in Subsection 8.60.089.A, shall be subject to an administrative fee as determined by the City Council by resolution in addition to any other costs set forth in Subsection 8.60.089.B when removing or conveying waste within the City or when reported dumping waste from within the City to any disposal site. (ORD-10-0014 § 14, 2010; Ord. C-7601 § 14, 1999: Ord. C-7330 § 5, 1995: Ord. C-6975 § 5, 1992; Ord. C-6922 § 8, 1991)

8.60.090 Procedure for permit suspension or revocation.

The suspension or revocation of a permit shall be governed by the provisions of Section 5.06.020. (Ord. C-7601 § 15, 1999: Ord. C-6922 § 2, 1991: Ord. C-5595 § 1 (part), 1980: prior code § 5220.3)

8.60.091 Transferability of refuse transportation permits.

A. Upon sale and purchase of a permitted entity, including the obtaining of a majority ownership of corporate stock, a refuse transportation permit shall be transferable with the written consent of the Director of Public Works. The Director of Public Works shall not unreasonably withhold consent to the transfer of a refuse transportation permit where the applicant demonstrates that the transfer is in full compliance with the provisions of this Chapter and other laws, ordinances, rules or regulations generally applicable to private waste collectors authorized to operate within the City and the transferee complies with all provisions of this Chapter required of an applicant for a new permit. An application for the transfer of a refuse transportation permit shall be submitted in accordance with the requirements of Subsections 8.60.082.A and 8.60.082.B. A nonrefundable fee for applying for the transfer of a refuse transportation permit shall be imposed as determined by the City Council by resolution to reimburse the City for the actual costs of processing the application and transferring the refuse transportation permit. A transferred permit shall expire at midnight of the June 30th next following the date of transfer, and shall thereafter be subject to annual renewal pursuant to Subsection 8.60.084.C for a period of one (1) year at a time.

B. Any person or business entity requesting a transfer shall pay all so-called AB 939 fees, including fines and penalties and report tonnage of all waste removed or conveyed since the adoption of the ordinance and/or resolutions on August 1991 governing the AB 939 program for both the transferred and the acquired company(ies). Failure to comply with this Section shall constitute grounds for suspension or revocation of an existing permit and/or denial of transfer. (ORD-10-0014 § 15, 2010; Ord. C-7330 § 6, 1995)

8.60.093 Number of general transportation permits.

A. The Director of Public Works shall not issue, nor need applications be accepted for, more than forty (40) general refuse transportation permits as provided in Subsection 8.60.080.B.2. in any calendar year.

B. If the number of such current and valid permits falls to or below thirty-five (35), the Director shall accept applications for the issuance of additional permits, which in no event shall cause the total number of outstanding permits to exceed forty (40). Should the number of qualified applications cause the number to exceed forty (40), then the Director shall determine the number of permits to be issued to qualified applicants by lot as determined by him/her to be appropriate. Each application submitted pursuant to this Section 8.60.093, shall be accompanied by an application fee as determined by the City Council by resolution which is imposed to cover the costs to the City of so-called AB 939 planning, determination of legal compliance and application processing. Except for a retained amount as determined by the City Council by resolution, the fee shall be returned to any applicants found ineligible for issuance of a permit.

C. Any junk collectors, junk dealers or any persons or party removing or conveying less than nine hundred (900) tons of refuse annually and holding a valid permit to do so on June 30, 1995, may continue to do so, subject to annual renewal as required by law, regardless of the numerical limit established by Subsection 8.60.093.A. Any new permits for such services applied for on or after July 1, 1995, shall be subject to the limits.

D. The Director of Public Works shall, on or after January 1, 1997, and biennially thereafter, review the adequacy of the maximum number of refuse transportation permits provided in this Section in meeting Long Beach refuse disposal needs and shall report his/her findings to the City Council together with his/her recommendation, if any,

for a change in that number. (ORD-10-0014 § 16, 2010; Ord. C-7330 § 7, 1995)

8.60.100 Vehicles conveying refuse.

A. Any person removing or conveying any refuse on any public street or other public place in the City shall utilize tight vessels, tanks, receptacles or truck-mounted bodies, each of which shall be so covered as to prevent contents escaping therefrom. Such cover shall be of a type satisfactory to the Director of Public Works.

B. Vehicles used for the removal of refuse, manure and other potentially offensive substances shall be maintained in a clean and sanitary manner so as to minimize odor and vector problems. Such vehicles must be provided with metal lining or metal receptacles, must be strong and tight and must be kept covered except while such material is being deposited in or removed therefrom. No such vehicle shall be stored in a residential area. (Ord. C-7601 § 16, 1999: Ord. C-7057 § 9, 1992: Ord. C-5595 § 1 (part), 1980: prior code § 5220.4)

8.60.110 Refuse falling in street.

No receptacle shall be filled to exceed capacity. Receptacles exceeding capacity shall be noticed and not collected. If any refuse is dropped or spilled on the City right-of-way from trash picking, scavenging, overflowing containers, or animal scavenging, it shall be the responsibility of the property owner or occupant to clean up and properly dispose of the refuse. (Ord. C-7601 § 17, 1999: Ord. C-7057 § 10, 1992: Ord. C-5595 § 1 (part), 1980: prior code § 5220.5)

8.60.111 Throwing rubbish and refuse on public right-of-way or storm drain system prohibited.

No person shall put, place, sweep, throw, brush or in any other manner deposit any refuse, litter, vegetation, or any other waste in or on any public right-of-way or any portion of the storm drain system, including, but not limited to, streets, gutters, sidewalks, parkways and alleys. This Section shall not be construed to prohibit the placing of any required rubbish containers upon any sidewalk, street or alley in compliance with the provisions of the sections governing the collection of waste or rubbish. (Ord. C-7601 § 18, 1999: Ord. C-7330 § 8, 1995)

8.60.113 Illegal dumping in street sweeping roll-off containers prohibited.

No person shall dispose of refuse of any kind, including, but not limited to, infectious waste, hazardous waste, construction or demolition debris, large items, materials from industrial and manufacturing processes, food processing wastes, explosives, liquids, offal and any substances such that exposure to them may pose a threat to human health or the environment, into the roll-off containers for street sweeping debris. (Ord. C-7601 § 19, 1999: Ord. C-7330 § 9, 1995)

8.60.120 Illegal dumping prohibited—Permit revocation.

A. No person shall transfer the financial liability for refuse disposal by depositing waste of any kind upon any public street, other public place or private parcel, lot, premises, litter receptacle or refuse receptacle thereon.

B. No person shall deposit waste of any kind in the receptacle of, or on the premises of a business, residence or lot, which was not generated on those premises without first obtaining a written permit from the property owner or occupant who is liable for the refuse collection fees. For those accounts serviced by City refuse collection crews, a written permit shall also be obtained from the Director of Public Works prior to depositing any waste on a lot or in the City-serviced receptacle of any business, residence or premises where the waste was not generated.

C. Litter receptacles are placed on public property for incidental litter and refuse generated while using public facilities. No person shall dispose of refuse, other than individual litter, that was not generated from the uses of that public facility by depositing it in litter receptacles.

D. Violation of this Section by the holder of any permit granted pursuant to the provisions of this Chapter shall be grounds for the revocation of

such permit by the City. (Ord. C-7601 § 20, 1999: Ord. C-7057 § 11, 1992: Ord. C-5595 § 1 (part), 1980: prior code § 5220.6)

8.60.130 Removal of waste from receptacles.

When any waste receptacle is placed upon any premises as provided in this Chapter, only the owner, or agent carrying a current license and permit with the City and all other applicable permits and licenses, or authorized employee or agent of the City shall move, remove or tamper with such receptacle, or remove any refuse or recyclable material from any such receptacle. (Ord. C-7601 § 21, 1999: Ord. C-7057 § 12, 1992: Ord. C-5595 § 1 (part), 1980: prior code § 5220.7)

8.60.140 Collection charges.

A. The City shall provide for the collection and removal of solid waste from all property in the City at regular intervals to be prescribed by the Director of Public Works. A charge is imposed upon every property owner or occupant of property in the City not expressly exempted therefrom in this Chapter for such classes of service. Unless exempted, the charge shall always apply if the property is receiving either water or gas service and pursuant to Section 8.60.240 a written exemption has not been requested and received in advance from the Director of Public Works.

B. The City shall provide for the collection, marketing and processing of recyclable materials stipulated in Sections 8.60.010 through 8.60.070 from all accounts designated by the Director of Public Works. A l recycling program charge shall be imposed upon every property owner or occupant of each dwelling unit of a lot or parcel if the property is receiving City refuse service and the property is not expressly exempted therefrom in this Chapter.

C. The City shall provide the collection, marketing and processing of organic materials stipulated in Sections 8.60.101 through 8.60.370 from all accounts designated by the Director of Public Works. A organics program charge shall be imposed upon every property owner or occupant of each dwelling unit or a lot or parcel if the property is receiving City refuse services and the property is not expressly exempted therefrom in this Chapter.

D. Rates for all City-serviced solid waste services, late fees and penalties shall be as established by the City Council by resolution. (ORD-21-0040 § 7, 2021; Ord. C-7057 § 13, 1992: Ord. C-5595 § 1 (part), 1980: prior code § 5220.8(a))

8.60.150 Billing—Period.

A. Regular bills for service shall be rendered at intervals prescribed by the City. Insofar as it is practicable, accounts shall be scheduled at regular intervals for the preparation of regular bills, and accounts shall be scheduled as required for the preparation of opening, closing and special bills.

B. The customer's bill shall be calculated on the basis of the number of days in the billing period times the daily charge in accordance with the rate schedule applicable to that service. (Ord. C-7057 § 14, 1992: Ord. C-5595 § 1 (part), 1980: prior code § 5220.8(b))

8.60.160 Mixed permanent and transient occupancy.

Apartment hotels and other hostelries of a like nature which provide both apartments and transient room accommodations may be charged either on the basis of volume of refuse collected per week or on the basis of the number of apartment dwelling units, but in no event shall the charge be less than the daily unit charge set forth in the applicable refuse rate schedule. The charging method to be used in each specific instance shall be determined by the Director of Public Works. (Ord. C-5595 § 1 (part), 1980: prior code § 5220.8(c))

8.60.180 Determination of volume.

Refuse collection service charges established on volume shall be determined on the basis of average quantities collected. The Director of Public Works shall cause such quantities to be periodically reviewed, and upon the basis of his findings the daily charge shall be adjusted to maintain conformance with the volume of refuse being collected; excepting that the daily charge shall not be

adjusted in relation to temporary variations of refuse due to seasonal factors where such variations from the average do not extend beyond a two (2) month period. (Ord. C-5595 § 1 (part), 1980: prior code § 5220.8(e))

8.60.190 Special service.

A. The Director of Public Works may provide for the removal and disposal of refuse and/or recyclable materials from any place or premises at times in addition to or beyond the regular collection service schedule or in a manner different from routine collection practice and procedures. Any special service shall be established by the Director of Public Works. Charges for such special services, including cart repair, exchange and replacement, special refuse, rollout service and, additional unscheduled collection shall be established from time to time by the Director of Public Works.

B. The charge for a special service shall be billed for collection separately from the routine service charge collections by the manager of the Commercial Services Bureau to the property owner or firm who shall be liable to the City for payment.

C. Upon failure to pay any such special service fee when due, an action may be brought to collect the same, pursuant to Section 8.60.200 of the Municipal Code. (Ord. C-7057 § 15, 1992: Ord. C-5595 § 1 (part), 1980: prior code § 5220.8(f))

8.60.200 Billing—Liability for payment.

All occupants of property, unless expressly excepted in this Chapter shall be liable for payment of refuse collection service, recycling service and special services as prescribed in Sections 8.60.140 and 8.60.190. Such charge shall be billed by inclusion with municipal utility bills where practicable. In instances of property containing more than one (1) dwelling unit or place of business, or both, which are served by single utility meters for both gas and water service, or in other instances where direct billing to occupants is not possible or practical, the service charges may be billed to the property owner, who may collect such charges from the occupants of the dwelling units or places of business located on the property of the owner. In the event the property owner fails to collect the service charges from any such occupant or remit same to the City, the property owner shall be liable to the City for payment of the charges. Refuse collection and recycling service charges shall be a debt owing to the City from the occupant of the premises receiving the service, or from the property owner if billed thereto. Upon failure to pay any such charges when the utility bill with which the charges are included is due, an action may be brought in a court of proper jurisdiction to collect the same and may become a lien upon the property. The property owner and/or occupant shall reimburse the City for its costs and expenses in connection therewith, including reasonable Attorney's fees. Refuse or recycling collection service may be discontinued or refused to any premises at which the customer has not paid the utility bill in full within the prescribed time, unless said utility bill is formally disputed for refuse collection charges. (Ord. C-7057 § 16, 1992: Ord. C-5595 § 1 (part), 1980: prior code § 5220.9(a))

8.60.210 Billing—Rental property.

When billed to the property owner, the refuse collection service charges shall be based upon full occupancy of all rental units upon the property during the period covered by the bill. (Ord. C-5595 § 1 (part), 1980: prior code § 5220.9(b))

8.60.220 Billing—Establishment of procedures.

The Director of Public Works is authorized to determine and establish such rules, procedures and methods as may be necessary or desirable to the implementation of Sections 8.60.200 through 8.60.230, and so as to provide for circumstances or situations for which no specific provision is included in Sections 8.60.200 through 8.60.230, and shall determine the interval for billing of such refuse collection service charges; provided that such billings shall not be less frequent than every four (4) months. (Ord. C-5595 § 1 (part), 1980: prior code § 5220.9(c))

8.60.230 Administration.

Commercial activities for the Department of Public Works are performed by the Commercial

Services Bureau of the Department of Financial Management, and regulations contained in this Chapter shall be implemented and applied by procedures established by the Manager of Commercial Service, subject to the approval of the Director of Public Works. (Ord. C-7057 § 17, 1992: Ord. C-5595 § 1 (part), 1980: prior code § 5220.9(d))

8.60.240 Municipal refuse services use required—Exceptions.

A. Property owners and occupants within the City shall utilize the municipal refuse collection and recycling service and shall be obligated to make payment to the City for such service in accordance with provisions of Sections 8.60.140 through 8.60.190 excepting that:

1. Property owners or occupants may utilize the service of a licensed and permitted solid waste enterprise for collection, removal and disposal of "refuse not collected by the City", as defined in this Chapter.

2. Property owners or occupants which generate in excess of ten (10), one hundred (100) gallon containers of refuse and recyclables per week, and any number of contiguous properties or rental units under common ownership by an individual business, firm, or private or public corporation which is designated as one (1) account and jointly generates in excess of thirty (30), one hundred (100) gallon containers of refuse and recyclables per week, may request an exemption from the Director of Public Works. Having received such an exemption in writing, the property owner or occupant may utilize a solid waste enterprise licensed and permitted to remove or convey waste within the City for the collection, removal and disposal of refuse from such specific properties as authorized in this Chapter. In the event that such exceptions apply, then no routine refuse collection or recycling service charge shall be made against the occupants or owners of such properties. Special collection charges shall apply for services deemed necessary to maintain public health and safety by the Director of Public Works.

3. A property owner or occupant within an area newly annexed to the City may utilize the service of a private refuse collection service for a period not to exceed the maximum time prescribed in Health and Safety Code § 4272; provided that such private refuse collection service is authorized to continue furnishing the service pursuant to and is in compliance with all applicable laws and regulations, and has obtained the requisite business license refuse transportation permit from the City; and provided further, that such occupant or owner was an occupant or owner at the time the area was annexed to the City. In such event, and if the City collects no refuse or recyclables therefrom, then no refuse or recycling collection service charge shall be made against the occupants or owners of such properties.

B. Nothing in this Section shall be construed to prohibit any property owner or occupant from selling to, or otherwise disposing of to a private agency, any specific type or classification of refuse or recyclable material which may have economic value; provided, that the private agency shall be required to comply with all provisions of this Chapter relative to the collection and conveyance of refuse or recyclables within the City and all other applicable laws and regulations. (Ord. C-7601 § 22, 1999: Ord. C-7057 § 18, 1992: Ord. C-5595 § 1 (part), 1980: prior code § 5220.10)

8.60.250 Accumulation time limit.

Occupants or property owners shall not cause or permit rubbish to accumulate at any place or property under their care or control for a period in excess of one (1) calendar week; excepting that this provision shall not apply to those manufacturing wastes not constituting a health or fire hazard or a nuisance to adjacent properties. (Ord. C-5595 § 1 (part), 1980: prior code § 5220.11)

8.60.260 Maintenance of clean sidewalks and alleys.

The occupant or tenant, or in the absence of an occupant or tenant, the property owner, lessee, or proprietor of any real property in this City which is adjacent to a paved public sidewalk or a paved alley shall cause the sidewalk or alley to be swept or otherwise cleaned each day, Sundays and

legal holidays excepted, if necessary to keep and maintain the public sidewalk or alley free of dirt, paper, litter or rubbish of any kind. The sweepings and debris from the sidewalk or alley shall be caused to be disposed of by the person responsible for the cleanliness of the sidewalk or alley, but such sweepings and debris shall not be swept or otherwise caused or allowed to be disposed of in the street or gutter. If the property owner or occupant fails to maintain the public sidewalk or alley free of waste of any kind, the Director of Public Works may, for public health and safety reasons, cause the sidewalk or alley adjacent to real property to be cleaned and assess a fee to the property owner pursuant to Sections 8.60.190 and 8.60.200 of the Municipal Code. (Ord. C-7057 § 19, 1992: Ord. C-5800 § 1, 1992: prior code § 5220.12)

8.60.270 Provision of waste receptacles for public use.

A. The owner or operator of any retail establishment which sells a product which is commonly used or consumed immediately after purchase shall provide a waste receptacle of sufficient capacity, as defined in this Chapter, on his or her property for use by that establishment's customers.

B. The owner or operator of each of the following establishments shall provide and empty a tobacco waste receptacle, such as a cigarette urn or ash tray, in each area of his or her establishment where smoking is lawfully permitted:

1. Any retail establishment which sells tobacco products, or alcoholic beverages for consumption on the premises.

2. Any place of employment, in any area of the establishment where smoking is permitted.

C. Each such receptacle provided under this Section shall be of sufficient capacity, as defined in this Chapter, and both the receptacle and the area surrounding it shall be maintained in a sanitary manner.

D. No waste receptacle provided under this Section shall be located on public property without the permission of the Director of Public Works. (Ord. C-7601 § 26, 1999)

8.60.350 Refund of refuse and/or recycling collection charges.

Refund provisions in Chapter 3.48 shall apply with the following conditions:

A. The refund shall be credited to the corresponding refuse or recycling service account. If the refuse account is closed, the refund amount shall be made to such person entitled to receive the money.

B. The refund shall be requested in writing by the person entitled to the refund. The refund request shall be made within one (1) year after payment of the money to the City. The refund amount shall not exceed a six (6) month period of the disputed amount. (Ord. C-7057 § 21, 1992)

8.60.360 Penalty for defacing or removing refuse carts and recycling bins.

No person shall deface or remove without authorization any "cart" or "recycling bin" as defined herein, and any person convicted of so doing shall be guilty of a misdemeanor which shall be punishable by a fine of not more than five hundred dollars ($500.00), or by imprisonment in the City or County jail for a period not exceeding six (6) months, or by both such fine and imprisonment. Each such person shall be guilty of a separate offense for each and every day during any portion of which any violation of any provision of this Code is committed, continued, or permitted by such person and shall be punishable accordingly. (Ord. C-7057 § 22, 1992)

8.60.370 Mandatory organic waste disposal reduction.

A. Requirements for Single-Family Generators. Single Family Organic Waste Generators:

1. Shall be automatically enrolled in the City's Organic Waste collection services and shall have the number of receptacles or bins with sufficient capacity necessary to contain their refuse, organics, and recyclables in compliance with City ordinances and the Health and Safety Code. City-serviced accounts will be advised in writing by the Director of Public Works, or designee, to increase their levels of service by obtaining additional re-

ceptacles or arranging for more frequent collection. If the Director of Public Works, or designee, determines that overflowing or otherwise non-contained waste (Organics, Refuse, or Recycling) continues to create a nuisance or a threat to public health or safety after written notification to the account, or to the property owner and occupant, the Director, or designee, shall either provide sufficient containers and collection and bill the account in accord with the schedule of fees adopted by the City Council, or refer the matter to the appropriate City department for further action.

2. Shall participate in the City of Long Beach's Organic Waste collection service(s) by placing designated materials in designated containers, and shall not place Prohibited Container Contaminants in collection containers.

3. Nothing in this Section prohibits a generator from preventing or reducing waste generation, managing Organic Waste on site, and/or using a Community Composting site pursuant to 14 CCR Section 18984.9(c).

B. Requirements for Commercial Businesses. Generators that are Commercial Businesses, including Multi-Family Residential Dwellings, shall:

1. Shall be automatically enrolled to a collection service(s) including required diversion for Organics and Recyclables, except those that meet the Self-Hauler requirements in Section 8.60.370.G of this ordinance. City-serviced accounts shall be automatically enrolled in service(s) as require by State law. Commercial generators permitted to utilize the service of a licensed and permitted solid waste enterprise for collection, as defined in Section 8.60.240 shall be automatically enrolled by their hauler in Organics, Recycling, and Refuse collection unless required diversion is met through a High Diversion Facility in accordance with Title 14 of CCR. Commercial generators that are allowed to utilize the service of a licensed and permitted solid waste enterprise are allowed to utilize any of the permitted haulers for these services. The City shall have the right to review the number and size of a generator's containers and frequency of collection to evaluate adequacy of capacity provided for each type of collection service for proper separation of materials and containment of materials; and, Commercial Businesses shall adjust their service level for their collection services as requested by the City.

2. Participate in Organic Waste collection service(s) by placing designated materials in designated containers as described by the hauler to meet the service requirements of Title 14 of CCR., except Commercial Businesses that meet the Self-Hauler requirements in Section 8.60.370.G of this ordinance.

3. Supply and allow access to adequate number, size and location of collection containers with sufficient labels or colors (conforming with Subsections B.4(a) and (b) below) for employees, contractors, tenants, and customers, consistent with the City's or licensed permitted private haulers collection service or, if self-hauling, per the Commercial Businesses' instructions to support its compliance with its self-haul program, in accordance with Section 8.60.370.G of this ordinance.

4. Excluding Multi-Family Residential Dwellings and commercial businesses using a permitted hauler which utilizes a 1-2 cart collection system processed at a permitted High Diversion Processing Facility meeting the requirements of Title 14 of CCR, provide containers for the collection of Source Separated Green Container Organic Waste and Source Separated Recyclable Materials in all indoor and outdoor areas where disposal containers are provided for customers, for materials generated by that business. Pursuant to 14 CCR Section 18984.9(b), the containers provided by the business shall have either:

a. A body or lid that conforms with the container colors provided through the collection service provided by City or licensed permitted hauler, with either lids conforming to the color requirements or bodies conforming to the color requirements or both lids and bodies conforming to color requirements. A Commercial Business is not required to replace functional containers, including containers purchased prior to January 1, 2022, that do not comply with the requirements of the subsection prior to the end of the useful life of those containers, or prior to January 1, 2036, whichever comes first.

b. Container that include language or graphic images, or both, indicating the primary material accepted and the primary materials prohibited in that container, or containers with imprinted text or graphic images that indicate the primary materials accepted and primary materials prohibited in the container. Pursuant 14 CCR Section 18984.8, the container labeling requirements are required on new containers commencing January 1, 2022.

5. Multi-Family Residential Dwellings are not required to comply with container placement requirements or labeling requirements in Section B.4 pursuant to 14 CCR Section 18984.9(b).

6. To the extent practical through education, training, Inspection, and/or other measures, excluding Multi-Family Residential Dwellings, prohibit employees from placing materials in a container not designated for those materials per the City's collection service or, if self-hauling, per the Commercial Businesses' instructions to support its compliance with its self-haul program, in accordance with Section 8.60.370.G of this ordinance.

7. Excluding Multi-Family Residential Dwellings, periodically inspect all Containers for contamination and inform employees if containers are contaminated and of the requirements to keep contaminants out of those containers pursuant to 14 CCR Section 18984.9(b)(3).

8. Annually provide information to employees, contractors, tenants, and customers about Organic Waste Recovery requirements and about proper sorting of Source Separated Green Container Organic Waste and Source Separated Recyclable Materials. Not applicable to businesses meeting recovery requirements through a 1-container system processed at a permitted High Diversion Facility.

9. Provide education information before or within fourteen (14) days of occupation of the premises to new tenants that describes requirements to keep Source Separated Green Container Organic Waste and Source Separated Recyclable Materials separate from Refuse Container Waste (when applicable) and the location of containers and the rules governing their use at each property.

10. Provide or arrange access for City or its agent to their properties during all Inspections conducted in accordance with this ordinance to confirm compliance with the requirements of this ordinance.

11. Accommodate and cooperate with City's or its agent's Remote Monitoring program for Inspection of the contents of containers for Prohibited Container Contaminants, which may be implemented at a later date, to evaluate generator's compliance with this ordinance. The Remote Monitoring program shall involve installation of Remote Monitoring equipment on or in the service Containers.

12. At Commercial Business's option and subject to any approval required from the City, implement a Remote Monitoring program for Inspection of the contents of its Containers for the purpose of monitoring the contents of containers to determine appropriate levels of service and to identify Prohibited Container Contaminants. Generators may install Remote Monitoring devices on or in the Containers subject to written notification to or approval by the City or its Designee.

13. If a Commercial Business wants to self-haul, meet the Self-Hauler requirements in Section 8.60.370.G of this ordinance.

14. Nothing in this Section prohibits a generator from preventing or reducing waste generation, managing Organic Waste on site, or using a Community Composting site pursuant to 14 CCR Section 18984.9(c).

15. Commercial Businesses that are Tier One or Tier Two Commercial Edible Food Generators shall comply with Food Recovery requirements, pursuant to this ordinance.

C. Waivers for Generators. If Commercial Business or Multi-Family Residential Dwelling is serviced by the City, these waivers can be directly submitted to the City. If the Commercial Business or Multi-Family Residential Dwelling utilizes the service of a licensed and permitted solid waste enterprise for collection, as defined in Section

8.60.240 then waivers must be submitted to them directly. The licensed and permitted solid waste enterprise will submit these waivers to the City.

1. De Minimis Waivers (Optional for Three-, Three-Plus, and Two-Container Systems per 14 CCR Section 18984.11). The City may waive a Commercial Business' obligation (including Multi-Family Residential Dwellings) to comply with some or all of the Organic Waste requirements of this ordinance if the Commercial Business provides documentation that the business generates below a certain amount of Organic Waste material as described in Subsection 1.b. below. Commercial Businesses requesting a de minimis waiver shall:

a. Submit an application specifying the services that they are requesting a waiver from and provide documentation as noted in Subsection C.1.b below.

b. Provide documentation that either:

(i) The Commercial Business' total Solid Waste collection service is two cubic yards or more per week and Organic Waste comprises less than twenty (20) gallons per week per applicable container of the business' total waste; or

(ii) The Commercial Business' total Solid Waste collection service is less than two cubic yards per week and Organic Waste comprises less than ten (10) gallons per week per applicable container of the business' total waste.

c. Notify City if circumstances change such that Commercial Business's Organic Waste exceeds threshold required for waiver, in which case waiver will be rescinded.

d. Provide written verification of eligibility for de minimis waiver every five (5) years, if City has approved de minimis waiver.

2. Physical Space Waivers (Optional for Three-, Three-Plus, and Two-Container Systems) The City may waive a Commercial Business' or property owner's obligations (including Multi-Family Residential Dwellings) to comply with some or all of the recyclable materials and/or Organic Waste collection service requirements if the City has evidence from its own staff, a hauler, licensed architect, or licensed engineer demonstrating that the premises lacks adequate space for the collection containers required for compliance with the Organic Waste collection requirements of this ordinance. A Commercial Business or property owner may request a physical space waiver through the following process:

a. Submit an application form specifying the type(s) of collection services for which they are requesting a compliance waiver.

b. Provide documentation that the premises lacks adequate space for Recycling Containers and/or Organics Containers including documentation from its hauler, licensed architect, or licensed engineer.

c. Provide written verification to City that it is still eligible for physical space waiver every five (5) years, if City has approved application for a physical space waiver.

3. Review and Approval of Waivers by the Public Works Director or designee.

D. Requirements For Commercial Edible Food Generators.

1. Tier One Commercial Edible Food Generators must comply with the requirements of this Section commencing January 1, 2022, and Tier Two Commercial Edible Food Generators must comply commencing January 1, 2024, pursuant to 14 CCR Section 18991.3.

2. Large Venue or Large Event operators not providing food services, but allowing for food to be provided by others, shall require Food Facilities operating at the Large Venue or Large Event to comply with the requirements of this Section, commencing January 1, 2024.

3. Commercial Edible Food Generators shall comply with the following requirements:

a. Arrange to recover the maximum amount of Edible Food that would otherwise be disposed.

b. Contract with, or enter into a written agreement with Food Recovery Organizations or Food Recovery Services for: (i) the collection of Edible Food for Food Recovery; or, (ii) acceptance of the Edible Food that the Commercial Edible Food Generator self-hauls to the Food Recovery Organization for Food Recovery.

c. Shall not intentionally spoil Edible Food that is capable of being recovered by a Food Recovery Organization or a Food Recovery Service.

d. Allow City's designated enforcement entity or designated third party enforcement entity to access the premises and review records pursuant to 14 CCR Section 18991.4.

e. Keep records that include the following information, or as otherwise specified in 14 CCR Section 18991.4:

(i) A list of each Food Recovery Service or organization that collects or receives its Edible Food pursuant to a contract or written agreement established under 14 CCR Section 18991.3(b).

(ii) A copy of all contracts or written agreements established under 14 CCR Section 18991.3(b).

(iii) A record of the following information for each of those Food Recovery Services or Food Recovery Organizations:

1) The name, address and contact information of the Food Recovery Service or Food Recovery Organization.

2) The types of food that will be collected by or self-hauled to the Food Recovery Service or Food Recovery Organization.

3) The established frequency that food will be collected or self-hauled.

4) The quantity of food, measured in pounds recovered per month, collected or self-hauled to a Food Recovery Service or Food Recovery Organization for Food Recovery.

f. The City may additionally request the records to be submitted electronically or by mail within fifteen (15) days of the request.

4. Nothing in this ordinance shall be construed to limit or conflict with the protections provided by the California Good Samaritan Food Donation Act of 2017, the Federal Good Samaritan Act, or share table and school food donation guidance pursuant to Senate Bill 557 of 2017 (approved by the Governor of the State of California on September 25, 2017, which added Article 13 [commencing with Section 49580] to Chapter 9 of Part 27 of Division 4 of Title 2 of the Education Code, and to amend Section 114079 of the Health and Safety Code, relating to food safety, as amended, supplemented, superseded and replaced from time to time).

E. Requirements For Food Recovery Organizations and Services.

1. Food Recovery Services collecting or receiving Edible Food directly from Commercial Edible Food Generators, via a contract or written agreement established under 14 CCR Section 18991.3(b), shall maintain the following records, or as otherwise specified by 14 CCR Section 18991.5(a)(1):

a. The name, address, and contact information for each Commercial Edible Food Generator from which the service collects Edible Food.

b. The quantity in pounds of Edible Food collected from each Commercial Edible Food Generator per month.

c. The quantity in pounds of Edible Food transported to each Food Recovery Organization per month.

d. The name, address, and contact information for each Food Recovery Organization that the Food Recovery Service transports Edible Food to for Food Recovery.

2. Food Recovery Organizations collecting or receiving Edible Food directly from Commercial Edible Food Generators, via a contract or written agreement established under 14 CCR Section 18991.3(b), shall maintain the following records, or as otherwise specified by 14 CCR Section 18991.5(a)(2):

a. The name, address, and contact information for each Commercial Edible Food Generator from which the organization receives Edible Food.

b. The quantity in pounds of Edible Food received from each Commercial Edible Food Generator per month.

c. The name, address, and contact information for each Food Recovery Service that the organization receives Edible Food from for Food Recovery.

3. Food Recovery Organizations and Food Recovery Services shall inform generators about California and Federal Good Samaritan Food Do-

nation Act protection in written communications, such as in their contract or agreement established under 14 CCR Section 18991.3(b).

4. Food Recovery Organizations and Food Recovery Services that have their primary address physically located in the City and contract with or have written agreements with one or more Commercial Edible Food Generators pursuant to 14 CCR Section 18991.3(b) shall report to the City the total pounds of Edible Food recovered in the previous calendar year from the Tier One and Tier Two Commercial Edible Food Generators they have established a contract or written agreement with pursuant to 14 CCR Section 18991.3(b) no later than March 31 of each year, commencing March 31, 2023.

5. Food Recovery Capacity Planning.

a. Food Recovery Services and Food Recovery Organizations. In order to support Edible Food Recovery capacity planning assessments or other studies conducted by the City or its designated entity, Food Recovery Services and Food Recovery Organizations operating in the City shall provide information and consultation to the City, upon request, regarding existing, or proposed new or expanded, Food Recovery capacity that could be accessed by the City and its Commercial Edible Food Generators. A Food Recovery Service or Food Recovery Organization contacted by the City shall respond to such request for information within 60 days, unless a shorter timeframe is otherwise specified by the City.

F. Requirements for Haulers and Facility Operators.

1. Requirements for Permitted Non-Exclusive Franchised Haulers.

a. Non-exclusive franchised haulers providing, Commercial (Multi-Family Dwelling) or industrial Organic Waste collection services to generators within the City's boundaries that meet the requirements of 8.60.240 shall meet the following requirements and standards as a condition of approval of a contract, agreement, or other authorization with the City to collect Organic Waste:

(i) Through written notice to the City annually on or before December 31st , identify the facilities to which they will transport Organic Waste including facilities for Source Separated Recyclable Materials, Source Separated Green Container Organic Waste, and Mixed Waste.

(ii) Transport Source Separated Recyclable Materials, Source Separated Green Container Organic Waste, and Mixed Waste to a facility, operation, activity, or property that recovers Organic Waste as defined in 14 CCR, Division 7, Chapter 12, Article 2.

b. Permitted Non-exclusive franchised haulers' authorization to collect Organic Waste shall comply with education, equipment(including but not limited to carts and bins), signage (included but not limited to what is required by the law of signage on containers), container labeling, container color, contamination monitoring, reporting, and other requirements contained within its franchise agreement, permit, license, or other agreement entered into with City.

c. Non-Exclusive Franchise Haulers shall upon request provide a specified quantity of Compost or SB 1383 Eligible Mulch to City and its customers via periodic "giveaways" as specified in franchise agreement. They shall also keep and provide records to the City including the following:

(i) Dates provided;

(ii) Source of product including name, physical location and contact information for each entity, operation or facility from whom the Recovered Organic Waste products were procured;

(iii) Type of product;

(iv) Quantity provided; and

(v) Invoice or other record or documentation demonstrating purchase, procurement, or transfer of material to giveaway location.

d. Non-Exclusive Franchise Haulers shall upon request procure Renewable Gas as a Direct Service Provider.

(i) Direct Service Providers transporting solid waste, organic materials, and/or recyclable materials shall procure a percentage, to be determined, of their fuel as Renewable Gas. Renewable Gas used by Direct Service Providers shall comply with criteria specified in 14 CCR Section 18993.1.

2. Requirements for Facility Operators and Community Composting Operations.

a. Owners of facilities, operations, and activities that recover Organic Waste, including, but not limited to, Compost facilities, in-vessel digestion facilities, and publicly-owned treatment works shall, upon City request, provide information regarding available and potential new or expanded capacity at their facilities, operations, and activities, including information about throughput and permitted capacity necessary for planning purposes. Entities contacted by the City shall respond within sixty (60) days.

b. Community Composting operators, upon City request, shall provide information to the City to support Organic Waste capacity planning, including, but not limited to, an estimate of the amount of Organic Waste anticipated to be handled at the Community Composting operation. Entities contacted by the City shall respond within sixty (60) days.

G. Self-Hauler Requirements.

1. Self-Haulers shall source separate all recyclable materials and Organic Waste (materials that City otherwise requires generators to separate for collection in the City's organics and recycling collection program) generated on-site from Solid Waste in a manner consistent with 14 CCR Sections 18984.1 and 18984.2, or shall haul Organic Waste to a High Diversion Organic Waste Processing Facility as specified in 14 CCR Section 18984.3.

2. Self-Haulers shall haul their Source Separated Recyclable Materials to a facility that recovers those materials; and haul their Source Separated Green Container Organic Waste to a Solid Waste facility, operation, activity, or property that processes or recovers Source Separated Organic Waste. Alternatively, Self-Haulers may haul Organic Waste to a High Diversion Organic Waste Processing Facility.

3. Self-Haulers that are Commercial Businesses (including Multi-Family Residential Dwellings) shall keep a record of the amount of Organic Waste delivered to each Solid Waste facility, operation, activity, or property that processes or recovers Organic Waste; this record shall be subject to Inspection by the City. The records shall include the following information:

a. Delivery receipts and weight tickets from the entity accepting the waste.

b. The amount of material in cubic yards or tons transported by the generator to each entity.

c. If the material is transported to an entity that does not have scales on-site, or employs scales incapable of weighing the Self-Hauler's vehicle in a manner that allows it to determine the weight of materials received, the Self-Hauler is not required to record the weight of material but shall keep a record of the entities that received the Organic Waste.

4. Self-Haulers that are Commercial Businesses (including Multi-Family Self-Haulers) shall provide information collected in Section 8.60.370.G.3. to City if requested.

5. Self-Hauler meeting the above requirements for self-haul of organics do not automatically qualify for a waiver per this ordinance.

6. Self-Hauler meeting the requirements of self-haul for recycling do not automatically qualify for a waiver.

H. Inspections and Investigations by the City.

1. City representatives, including Designees, are authorized to conduct Inspections and investigations, at random or otherwise, of any collection container, collection vehicle loads, or transfer, processing, or disposal facility for materials collected from generators, or Source Separated materials, to confirm compliance with this ordinance by Organic Waste Generators, Commercial Businesses (including Multi-Family Residential Dwellings), property owners, Commercial Edible Food Generators, haulers, Self-Haulers, Food Recovery Services, and Food Recovery Organizations, subject to applicable laws. This Section does not allow City to enter the interior of a private residential property for Inspection. For the purposes of inspecting Commercial Business containers for compliance with Section 8.60.370.B.6 of this ordinance, City, or designee, may conduct container Inspections for Prohibited Container Contaminants using Remote Monitoring, and

Commercial Businesses shall accommodate and cooperate with the Remote Monitoring pursuant to this ordinance.

2. Regulated entity shall provide or arrange for access during all Inspections (with the exception of residential property interiors) and shall cooperate with the City's employee or its Designee during such Inspections and investigations. Such Inspections and investigations may include confirmation of proper placement of materials in containers, Edible Food Recovery activities, records, or any other requirement of this ordinance described herein. Failure to provide or arrange for: (i) access to an entity's premises; (ii) installation and operation of Remote Monitoring equipment; or (ii) access to records for any Inspection or investigation is a violation of this ordinance and may result in penalties described.

3. Any records obtained by City during its Inspections, Remote Monitoring, and other reviews shall be subject to the requirements and applicable disclosure exemptions of the Public Records Act as set forth in Government Code Section 6250 et seq.

4. City representatives and/or Designee are authorized to conduct any Inspections, Remote Monitoring, or other investigations as reasonably necessary to further the goals of this ordinance, subject to applicable laws.

5. City shall receive written complaints from persons regarding an entity that may be potentially non-compliant with SB 1383 Regulations, including receipt of anonymous complaints.

I. Enforcement.

1. Violation of any provision of this ordinance shall constitute grounds for issuance of a Notice of Violation and assessment of a fine by a City Enforcement Official or designee. Enforcement Actions under this ordinance include issuance of an administrative citation and assessment of a fine. The City's procedures on imposition of administrative fines are hereby incorporated in their entirety, as modified from time to time, and shall govern the imposition, enforcement, collection, and review of administrative citations issued to enforce this ordinance and any rule or regulation adopted pursuant to this ordinance, except as otherwise indicated in this ordinance.

2. Other remedies allowed by law may be used, including civil action or prosecution as misdemeanor or infraction. City may pursue civil actions in the California courts to seek recovery of unpaid administrative citations. Jurisdiction may choose to delay court action until such time as a sufficiently large number of violations, or cumulative size of violations exist such that court action is a reasonable use of City staff and resources.

3. Responsible Entity for Enforcement.

a. Enforcement pursuant to this ordinance may be undertaken by the City Enforcement Official, which may be the City Manager or their designated entity, City Attorney, City Prosecutor, or combination thereof.

b. Enforcement may also be undertaken by a Regional or County Agency Enforcement Official, designated by the City, in consultation with the City Enforcement Official.

(i) City Enforcement Official(s) (and Regional or County Agency Enforcement Official, if using) will interpret ordinance; determine the applicability of waivers, if violation(s) have occurred; implement Enforcement Actions; and, determine if compliance standards are met. Only City Enforcement Official(s) may issue waivers.

(ii) City Enforcement Official(s) (and Regional or County Agency Enforcement Official, if using) may issue Notices of Violation(s).

4. Process for Enforcement.

a. City Enforcement Officials or Regional or County Enforcement Officials and/or their Designee will monitor compliance with the ordinance randomly and through Compliance Reviews, Route Reviews, investigation of complaints, and an Inspection program (that may include Remote Monitoring). Section 8.60.370.H establishes City's right to conduct Inspections and investigations.

b. The City may issue an official notification to notify regulated entities of its obligations under the ordinance.

c. Contamination Processing Fees/Penalties: For incidences of Prohibited Container Contam-

inants found in containers, City may issue a Notice of Violation to any generator found to have Prohibited Container Contaminants in a container. Such notice will be provided immediately upon identification of the Prohibited Container Contaminants or within seven (7) days after determining that a violation has occurred. If the City observes Prohibited Container Contaminants in a generator's containers, the City may assess contamination processing fees or contamination penalties on the generator.

d. With the exception of violations of generator contamination of container contents addressed under Subsection 4.c above, City shall issue a Notice of Violation requiring compliance within thirty (30) days, or less, of issuance of the notice.

e. Absent compliance by the respondent within the deadline set forth in the Notice of Violation, City shall commence an action to impose penalties, via an administrative citation and fine, pursuant to LBMC Section 9.65.

f. Notices shall be sent to "owner" at the official address of the owner maintained by the Los Angeles County tax collector or if no such address is available, to the owner at the address of the dwelling or Commercial property or to the party responsible for paying for the collection services, depending upon available information.

5. Penalty Amounts for Types of Violations. The penalty levels are as follows:

a. For a first violation, the amount of the base penalty shall be Fifty Dollars ($50) to One Hundred Dollars ($100) per violation.

b. For a second violation, the amount of the base penalty shall be One Hundred Dollars ($100) to Two Hundred Dollars ($200) per violation.

c. For a third violation, the amount of the base penalty shall be Two Hundred Fifty Dollars ($250) to Five Hundred Dollars ($500) per violation.

d. For a fourth or subsequent violation, the amount of the base penalty shall be a base penalty of Five Hundred Dollars ($500) per violation, plus all additional fees related to monitoring violation, and fees related to ensuring compliance is met.

6. Factors Considered in Determining Penalty Amount. The following factors shall be used to determine the amount of the penalty for each violation within the appropriate penalty amount range:

a. The nature, circumstances, and severity of the violation(s);

b. The violator's ability to pay;

c. The willfulness of the violator's misconduct;

d. Whether the violator took measures to avoid or mitigate violations of this Chapter;

e. Evidence of any economic benefit resulting from the violation(s);

f. The deterrent effect of the penalty on the violator;

g. Whether the violation(s) were due to conditions outside the control of the violator.

7. Compliance Deadline Extension Considerations. The City may extend the compliance deadlines set forth in a Notice of Violation issued in accordance with Section 8.60.370.I if it finds that there are extenuating circumstances beyond the control of the respondent that make compliance within the deadlines impracticable, including the following:

a. Acts of God such as earthquakes, pandemic, wildfires, flooding, and other emergencies or natural disasters;

b. Delays in obtaining discretionary permits or other government agency approvals; or

c. Deficiencies in Organic Waste recycling infrastructure or Edible Food Recovery capacity and the Jurisdiction is under a corrective action plan with CalRecycle pursuant to 14 CCR Section 18996.2 due to those deficiencies.

8. Appeals Process. Persons receiving an administrative citation containing a penalty for an uncorrected violation may request a hearing to appeal the citation. A hearing will be held only if it is requested within the time prescribed and consistent with City's procedures in LBMC Chapter 9.65 regarding appeals of administrative citations. Ev-

idence may be presented at the hearing. The City will appoint a hearing officer, who may be a City employee different from the Enforcement Official, who shall conduct the hearing and issue a final written order.

9. Education Period for Non-Compliance. Beginning January 1, 2022 and through December 31, 2023, City will conduct Inspections, Remote Monitoring, Route Reviews or waste evaluations, and Compliance Reviews, depending upon the type of regulated entity, to determine compliance, and if Jurisdiction determines that Organic Waste Generator, Self-Hauler, hauler, Tier One Commercial Edible Food Generator, Food Recovery Organization, Food Recovery Service, or other entity is not in compliance, it shall provide educational materials to the entity describing its obligations under this ordinance and a notice that compliance is required by January 1, 2022, and that violations may be subject to administrative civil penalties starting on January 1, 2024.

10. Civil Penalties for Non-Compliance. Beginning January 1, 2024, if the City determines that an Organic Waste Generator, Self-Hauler, hauler, Tier One or Tier Two Commercial Edible Food Generator, Food Recovery Organization, Food Recovery Service, or other entity is not in compliance with this ordinance, it shall document the noncompliance or violation, issue a Notice of Violation, and take Enforcement Action pursuant to Section 17, as needed.

J. Effective Date. This Ordinance shall be effective commencing on January 1, 2022. (ORD-21-0040 § 10, 2021)

CHAPTER 8.61 SHOPPING CARTS*

8.61.010 Definitions.

For purposes of this Chapter only, and unless the context clearly requires a different meaning, the words, terms and phrases set forth in this Section are defined as follows:

"Business premises" means the interior of a cart owner's commercial establishment, adjacent walkways, any loading area, and the parking area, as defined herein.

"Cart identification sign" means a sign or engraved surface which is permanently affixed to a shopping cart containing all of the information specified in Section 8.61.050 of this Chapter.

"Cart owner" means the owner or operator of a commercial establishment which provides carts for use by its customers for the purpose of transporting goods of any kind.

"Cart removal warning" means a placard, sign or painted text which meets the requirements of Section 8.61.030 of this Chapter.

"Enforcement officer" means any officer or employee of the City designated with the authority to enforce the applicable provisions of the Long Beach Municipal Code.

"Enforcement agency" means the City department in which the enforcement officer is employed.

"Individual cart identification number" means a number unique to each cart owned or provided by a cart owner.

"On-site cart containment program" means one (1) or more of the following measures:

1. Disabling devices on all shopping carts which prevent them from being removed from the business premises by locking the wheels or otherwise preventing the movement of the carts.

2. An on-site security guard to deter customers who attempt to remove carts from the business premises.

3. Bollards and chains around the business premises to prevent cart removal, if permitted by the Fire Marshal.

4. Obtaining a security deposit from customers for the on-site use of shopping carts.

5. The rental or sale of utility carts that can be temporarily or permanently used for the transport of goods.

6. Any other measure approved by the Director of Planning and Building as a means to contain carts on-premises.

"Parking area" means a parking lot or other property provided by a commercial establishment for use by a customer for parking an automobile or other vehicle. In a multi-store complex or shopping center, "parking area" includes the entire parking area used by or controlled by the complex or center.

"Physical containment system" means one (1) of the following, as approved by the Director of Planning and Building:

1. Disabling devices on all shopping carts which prevent them from being removed from the business premises by locking the wheels or otherwise preventing the movement of the carts.

2. Any other system of equipment approved by the Director of Planning and Building which physically contains shopping carts on premises.

"Qualified cart retrieval service" means a commercial service, operated by a third party and paid by a cart owner to retrieve and return shopping carts. The Director of Planning and Building shall develop minimal service standards by which a cart retrieval service may be designated as a qualified cart retrieval service and maintain a list of all such services.

"Shopping cart" means a basket which is mounted on wheels or a similar device provided by the operator of a commercial establishment for the use of customers for the purpose of transporting goods of any kind. A cart sold by a commercial establishment to a retail customer for that customer's personal use is not a shopping cart for the purposes of this Chapter. (ORD-07-0046 § 1 (part), 2007)

8.61.020 Cart containment system—Required; exception.

A. Every cart owner shall operate and maintain an on-site cart containment program. A cart

*Note—Prior ordinance history: ORD-06-0013.

owner may be exempted from this requirement if he or she provides proof of contracting with a qualified cart retrieval service and submits an operations plan which demonstrates to the satisfaction of the Director of Planning and Building that the qualified cart retrieval service will both actively locate shopping carts within a one (1) mile radius of the cart owner's business premises and respond to complaints from the public in a manner which results in the retrieval of shopping carts within twenty-four (24) hours after receiving complaint(s).

B. Each cart owner must contain all shopping carts on the business premises at all times.

C. Any instance in which a shopping cart owned or provided by a cart owner is found off of the business premises shall be considered a violation by the cart owner of Subsection B of this Section.

1. Each twenty-four (24) hour period that the cart remains off the business premises shall be considered a separate violation of Subsection B of this Section.

2. A civil fine shall be assessed by means of an administrative citation issued by an enforcement officer and shall be payable directly to the City of Long Beach.

3. Fines shall be assessed at one hundred dollars ($100.00) for each violation.

4. Following the issuance of more than ten (10) (Subsection B of this Section), administrative citations to the same cart owner within a thirty (30) day period, in addition to administrative penalty set forth in this Chapter, subsequent violations by that cart owner shall be referred by the enforcement agency for criminal prosecution pursuant to Subsection 1.32.010.E of the Municipal Code. (ORD-07-0046 § 1 (part), 2007)

8.61.030 Cart removal warnings.

A. Every cart owner shall post and maintain cart removal warnings which meet all of the following minimum specifications:

1. Meet or exceed eighteen inches (18") in width and twenty-four inches (24") in height.

2. Using block lettering not less than one-half inch (½") in width and two inches (2") in height, contain a statement in two (2) or more languages to the effect that unauthorized removal of a shopping cart from the business premises, or possession of a shopping cart in a location other than on the business premises, is a violation of State law and City ordinance.

3. List a local or toll-free telephone number for cart retrieval.

4. Be affixed to an interior wall of the building or otherwise permanently and prominently displayed within two feet (2') of all customer entrances and exits.

B. Cart removal warnings on the exterior of the building are not considered "signs" for the purpose of calculating maximum allowable signage under Title 21 of the Municipal Code. (ORD-07-0046 § 1 (part), 2007)

8.61.040 Employee training—Cart removal prevention.

Each cart owner shall conduct ongoing employee training to educate new and existing employees about procedures to prevent cart removal, including the operation of the cart containment system. (ORD-07-0046 § 1 (part), 2007)

8.61.050 Cart identification signs for shopping carts.

A. Each shopping cart owned or used within the City shall have, permanently affixed and easily visible, a cart identification sign or engraved surface which includes all of the following information: The name of the cart owner, the telephone number of the cart owner and/or commercial establishment to which the cart belongs, the individual cart identification number, a valid toll-free phone number for cart retrieval, the procedure (if any) to be followed to obtain permission to remove the cart from the business premises, and a notice to the public that unauthorized removal of the cart from the business premises is a violation of State law and City ordinance.

B. It shall be the responsibility of each cart owner to comply with Subsection A of this Sec-

tion, and to continuously maintain, or cause to be maintained, the cart identification sign so that all of the required information is accurate and clearly legible. (ORD-07-0046 § 1 (part), 2007)

8.61.060 Cart removal from business premises—Written permission required.

No person shall be deemed to be authorized to remove a cart unless he or she possesses written authorization from the cart owner. This Section shall not apply the possession of a shopping cart removed from the business premises at the direction of the cart owner for the purposes of repair or maintenance. (ORD-07-0046 § 1 (part), 2007)

8.61.070 Physical containment system.

A. A cart owner shall be required to install a physical containment system to the satisfaction of the Director of Planning and Building when the cart owner establishes a facility consisting of more than five thousand (5,000) square feet of new construction.

B. A cart owner may be required to install a physical containment system to the satisfaction of the Director of Planning and Building and the City prosecutor following the issuance of more than ten (10) (Subsection 8.61.020.B), administrative citations in a thirty (30) day period. (ORD-07-0046 § 1 (part), 2007)

8.61.080 Regulatory fee authorized.

A regulatory fee shall be established to enforce this regulation and to fairly apportion the cost of mitigating the negative effects of off-site shopping carts. A business which installs a physical containment system to the satisfaction of the Director of Planning and Building, or which does not provide any shopping carts to its customers, shall be exempted from this fee. (ORD-07-0046 § 1 (part), 2007)

8.61.090 Service procedures.

An administrative citation subject to this Chapter shall be issued on a form approved by the City Manager or his or her designee, and may be served upon any cart owner by an enforcement officer in the following manner:

A. Service of citation by mail.

1. The administrative citation or duplicate thereof shall be mailed to the cart owner(s); and

2. A proof of service of the notice shall be made by declaration of the enforcement officer effecting the service. (ORD-07-0046 § 1 (part), 2007)

8.61.100 Contents of notice.

Each administrative citation issued pursuant to this Chapter shall contain the following information:

A. The date of service of the citation and the date, time, address or description of the location where the violation(s) was observed;

B. The code section(s) and condition(s) violated and a description of the violation(s);

C. A photographic image depicting the cart at the location of the violation(s);

D. The amount of the fine for the violation(s);

E. An explanation of how the fine shall be paid and the fine payment due date;

F. Notice of the right to appeal the citation, the time within which the citation may be appealed and the place to obtain a request for hearing form to appeal the administrative citation; and

G. The name and signature of the enforcement officer. (ORD-07-0046 § 1 (part), 2007)

8.61.110 Satisfaction of administrative citation.

Upon service of an administrative citation issued pursuant to this Chapter, the cart owner shall do the following:

A. Pay the fine no later than thirty (30) days from the date of issuance of the citation as specified on the administrative citation. Payment of a fine shall not bar further enforcement action by the City. Late charges shall be imposed for fine payments made after the fine payment due date.

The late charge shall be calculated at a rate of twenty-five percent (25%) of the fine, and will be imposed in addition to any outstanding fine.

B. Failure of the cart owner(s) to pay the civil fine and any accrued late penalties in a timely manner may result in the imposition of a special assessment and/or lien against the real property on the business premises, and/or filing of an action with the small claims court for recovery of the fine and any late penalty.The only issue to be adjudicated by the small claims court shall be whether or not the fines and possible late fees were paid. A cart owner may only obtain judicial review of the validity of the citation by first requesting and participating in an administrative appeal hearing before a Hearing Officer. In the small claims court action, the City may also recover its costs, according to proof.

C. The City may also refuse to issue, extend, or renew to any cart owner who has unpaid delinquent fines, interest, penalties, liens, or assessments, any City permit, license, entitlement, or other City approval pertaining to the business premises that is the subject of the fine and administrative citation.

D. Any permit, license, entitlement, or land use approval issued by the City may be subject to suspension or revocation of the permit, license, entitlement, or land use approval in accordance with the procedures set forth in the respective Long Beach Municipal Code if any unpaid fine, interest or penalties remain delinquent for a period of more than thirty (30) days. (ORD-07-0046 § 1 (part), 2007)

8.61.120 Appeal of administrative citation.

A. Any recipient of an administrative citation issued pursuant to this Chapter may appeal said citation by completing a written request for hearing form from the enforcement agency designated on the citation, and returning it to said City agency within thirty (30) calendar days from the date the administrative citation was served or deemed to have been served, together with a deposit in the total amount of the fine.

B. A failure to file a timely appeal of the administrative citation shall be deemed a waiver of the right to appeal and to seek judicial review.

C. The administrative appeal hearing shall be set for a date not sooner than fifteen (15) calendar days, and not more than sixty (60) calendar days from the date the request for hearing is completed and submitted in accordance with the provisions of this Chapter. The cart owner requesting the hearing shall be notified in writing of the time and place set for the hearing at least ten (10) calendar days prior to the date of the hearing.

D. The hearing provided for in this Chapter shall be conducted by a Hearing Officer or hearing body appointed by the City Manager or his or her authorized designee.

E. The Hearing Officer/body shall only consider evidence that is relevant to whether the appellant is the bona fide cart owner, and whether appellant created, committed, or maintained the violation(s). Courtroom rules of evidence shall not apply. Relevant hearsay evidence and written reports may be admitted whether or not the speaker or author is present to testify, if the Hearing Officer/body determines that such evidence is reliable. Admission of evidence and the conduct of the hearing shall be controlled by the Hearing Officer/body in accordance with the fundamentals of due process. The Hearing Officer/body may set reasonable limits on the length of the hearing, and shall allow the appellant at least as much time to present his or her case as is allowed to the City.

F. The appellant contesting the administrative citation shall be given the opportunity to testify and present witnesses and evidence concerning the citation. The City's case shall be presented by any person designated by the City Manager. The appellant and City may be represented by counsel.

G. The failure of the appellant to appear at the hearing shall constitute a forfeiture of the fine and a failure to exhaust administrative remedies.

H. The administrative citation and any additional documents prepared by the City in connection with the violation(s) may be submitted and shall constitute prima facie evidence of the respective facts contained in those documents.

I. If the enforcement officer or his or her designee submits any additional documents concerning the administrative citation to the Hearing Officer for consideration at the hearing, then, whenever possible, a copy of such document(s) shall be served by mail on the appellant at least five (5) calendar days prior to the date of the hearing.

J. The Hearing Officer/body may continue the hearing or request additional information from the enforcement officer, his or her designee or the appellant prior to issuing a written decision.

K. After considering all of the testimony and evidence submitted at the hearing, the Hearing Officer/body shall issue a written decision within fifteen (15) business days of the hearing. The decision of the Hearing Officer shall be final.

L. If the Hearing Officer/body denies the appeal, then the deposit shall be retained by the City.

M. If the Hearing Officer/body grants the appeal, then the City shall refund the deposit within thirty (30) business days from the date of the final written decision.

N. The Hearing Officer/body shall serve the appellant and City with a copy of the written decision. (ORD-07-0046 § 1 (part), 2007)

8.61.130 Dismissal of citation.

The enforcement officer, with the approval of the Director of the respective enforcement agency, may dismiss an administrative citation issued pursuant to this Chapter at any time if it is determined to have been issued in error, in which event any deposit will be refunded. (ORD-07-0046 § 1 (part), 2007)

8.61.140 Right to judicial review.

A. Either the City or the appellant aggrieved by a decision of a Hearing Officer/body on an administrative citation issued pursuant to this Chapter, may obtain review of the decision by filing a petition for review with the Los Angeles Superior Court in accordance with the time lines and provisions as set forth in California Government Code § 53069.4(b). Said procedure shall be available for all judicial review under this Chapter, notwithstanding that the term or condition being enforced pursuant to this Chapter may not be a matter covered by California Government Code § 53069.4(a). Judicial review of a citation shall not be available unless all administrative remedies have been exhausted as provided in this Chapter. (ORD-07-0046 § 1 (part), 2007)

8.61.150 Recovery of abatement costs.

The administrative citation process described in this Chapter does not preclude the City from recovering any other Code violation or nuisance abatement costs incurred by the City in performing its code enforcement efforts. (ORD-07-0046 § 1 (part), 2007)

8.61.160 City powers not limited by this Chapter.

Nothing in this Section is intended to limit the ability of the City to remove or dispose of any cart to which a cart identification sign is not attached, or to remove or dispose of any cart which impedes the provision of emergency services, or which is an immediate threat to public health and safety, to the full extent permitted by State law. (ORD-07-0046 § 1 (part), 2007)

8.61.170 Additional nonadministrative penalty.

The procedures established in this Chapter shall be in addition to any criminal, civil or other legal remedy established by law for violation of the sections defined in this Chapter of the Municipal Code. (ORD-07-0046 § 1 (part), 2007)

CHAPTER 8.62 PLASTIC CARRYOUT BAGS

8.62.010 Definitions.

A. "Customer" means any person or persons, purchasing goods from a store.

B. "Farmer's Market" has the meaning provided in Subsection 3.80.180.G of the Long Beach Municipal Code.

C. "Operator" means the person in control of, or having the responsibility for, the operation of a store, which may include, but is not limited to, the owner of the store.

D. "Person" means any natural person, firm, corporation, partnership, or other organization or group however organized.

E. "Plastic carryout bag" means any bag made predominantly of plastic derived from either petroleum or a biologically-based source, such as corn or other plant sources, which is provided to a customer at the point of sale. Plastic carryout bag includes compostable and biodegradable bags but does not include reusable bags, produce bags or product bags.

F. "Postconsumer recycled material" means a material that would otherwise be destined for solid waste disposal, having completed its intended end use and product life cycle. Postconsumer recycled material does not include materials and by-products generated from, and commonly reused within, an original manufacturing and fabrication process.

G. "Produce bag" or "product bag" means any bag without handles used exclusively to carry produce, meats, or other food items to the point of sale inside a store or to prevent such food items from coming into direct contact with other purchased items.

H. "Recyclable" means material that can be sorted, cleansed, and reconstituted using available recycling collection programs for the purpose of using the altered form in the manufacture of a new product. Recycling does not include burning, incinerating, converting, or otherwise thermally destroying solid waste.

I. "Recyclable paper carryout bag" means a paper bag that meets all of the following requirements: (1) contains no old growth fiber; (2) is one hundred percent (100%) recyclable overall and contains a minimum of forty percent (40%) postconsumer recycled material; (3) is capable of composting, consistent with the timeline and specifications of the American Society of Testing and Materials (ASTM) Standard D6400; (4) is accepted for recycling in curbside programs in the City; (5) has printed on the bag the name of the manufacturer, the location where the bag was manufactured, and the percentage of postconsumer recycled material used; and (6) displays the word "Recyclable" in a highly visible manner on the outside of the bag.

J. "Reusable bag" means a bag with handles that is specifically designed and manufactured for multiple reuse and meets all of the following requirements: (1) has a minimum lifetime of one hundred twenty-five (125) uses, which for purposes of this Section, means the capability of carrying a minimum of twenty-two (22) pounds one hundred twenty-five (125) times over a distance of at least one hundred seventy-five feet (175'); (2) has a minimum volume of fifteen (15) liters; (3) is machine washable or is made from a material that can be cleaned or disinfected; (4) does not contain lead, cadmium, or any other heavy metal in toxic amounts, as defined by applicable State and federal standards and regulations for packaging or reusable bags; (5) has printed on the bag, or on a tag that is permanently affixed to the bag, the name of the manufacturer, the location where the bag was manufactured, a statement that the bag does not contain lead, cadmium, or any other heavy metal in toxic amounts, and the percentage of postconsumer recycled material used, if any; and (6) if made of plastic, is a minimum of at least two and one-quarter (2.25) mils thick.

K. "Store" means any of the following retail establishments located within the City of Long Beach:

1. A full-line, self-service retail store with gross annual sales of two million dollars ($2,000,000.00), or more, that sells a line of dry grocery, canned goods, or nonfood items and some perishable items;

2. A store of at least ten thousand (10,000) square feet of retail space that generates sales or use tax pursuant to the Bradley-Burns Uniform Local Sales and Use Tax Law (Part 1.5 (commencing with Section 7200) of Division 2 of the Business and Professions Code) and that has a pharmacy licensed pursuant to Chapter 9 (commencing with Section 4000) of Division 2 of the Business and Professions Code; or

3. A drug store, pharmacy, supermarket, grocery store, convenience food store, food mart, or other entity engaged in the retail sale of a limited

line of goods that includes milk, bread, soda, and snack foods, including those stores with a Type 20 or 21 license issued by the Department of Alcoholic Beverage Control. (ORD-11-0009, § 1, 2011)

8.62.020 Plastic carryout bags prohibited.

A. No store shall provide to any customer a plastic carryout bag.

B. This prohibition applies to bags provided for the purpose of carrying away goods from the point of sale and does not apply to produce bags or product bags.

C. No person shall distribute a plastic carryout bag or any paper bag at the Long Beach Farmers' Markets, except produce bags or product bags. (ORD-11-0009, § 1, 2011)

8.62.030 Permitted bags.

All stores shall provide or make available to a customer only recyclable paper carryout bags or reusable bags for the purpose of carrying away goods or other materials from the point of sale, subject to the terms of this Chapter. Nothing in this Chapter prohibits customers from using bags of any type that they bring to the store themselves or from carrying away goods that are not placed in a bag, in lieu of using bags provided by the store. (ORD-11-0009, § 1, 2011)

8.62.040 Regulation of recyclable paper carryout bags.

A. Any store that provides a recyclable paper carryout bag to a customer must charge the customer ten cents ($0.10) for each bag provided, except as otherwise provided in this Chapter.

B. No store shall rebate or otherwise reimburse a customer any portion of the ten cent ($0.10) charge required in Subsection A, except as otherwise provided in this Chapter.

C. All stores must indicate on the customer receipt the number of recyclable paper carryout bags provided and the total amount charged for the bags.

D. All monies collected by a store under this Chapter will be retained by the store and may be used only for the following purposes:

1. Costs associated with complying with the requirements of this Chapter;

2. Actual costs of providing recyclable paper carryout bags; or

3. Costs associated with a store's educational materials or education campaign encouraging the use of reusable bags, if any.

E. All stores shall keep complete and accurate records or documents, for a minimum period of three (3) years from the date of sale, of the total number of recyclable paper carryout bags provided, the total amount of monies collected for providing recyclable paper carryout bags, which record shall be available for inspection at no cost to the City during regular business hours by any City employee authorized to enforce this Section. Unless an alternative location or method of review is mutually agreed upon, the records or documents shall be available at the store's address. A responsible agent or officer of the store shall confirm that the information provided is accurate and complete.

F. The provision of false information, including incomplete records or documents, to the City shall be a violation of this Section, and such store shall be subject to the fines set forth in Section 8.62.080. (ORD-11-0009, § 1, 2011)

8.62.050 Use of reusable bags.

A. All stores must provide reusable bags to customers, either for sale or at no charge.

B. Each store is strongly encouraged to educate its staff to promote reusable bags and to post signs encouraging customers to use reusable bags.

C. Each store is strongly encouraged to provide to the City and to the public a summary of any efforts a store has undertaken to promote the use of reusable bags by customers. (ORD-11-0009, § 1, 2011)

8.62.060 Exempt customers.

All stores must provide at the point of sale, free of charge, either reusable bags or recyclable paper carryout bags or both, at the store's option, to any customer participating either in the California Special Supplemental Food Program for Women, Infants, and Children pursuant to Article 2 (commencing with Section 123275) of Chapter 1

of Part 2 of Division 106 of the Health and Safety Code or in the Supplemental Food Program pursuant to Chapter 10 (commencing with Section 15500) of Part 3 of Division 9 of the Welfare and Institutions Code. (ORD-11-0009, § 1, 2011)

8.62.070 Operative date.

This Chapter shall become operative on August 1, 2011, for stores defined in Subsections K.1. and K.2. of Section 8.62.010. For stores defined in Subsection K.3. of Section 8.62.010, this Chapter shall become operative on January 1, 2012. For Farmers' Markets as defined in Subsection B of Section 8.62.010, this Chapter shall become operative on January 1, 2012. (ORD-11-0009, § 1, 2011)

8.62.080 Enforcement and violation-Penalty.

A. The City Manager has primary responsibility for enforcement of this Chapter. The City Manager or designee is authorized to promulgate regulations and to take any and all other actions reasonable and necessary to enforce this Chapter, including, but not limited to, investigating violations, issuing fines and entering the premises of any store during business hours. If the City Manager or designee determines that a violation of this Chapter has occurred, he/she will issue a written warning notice to the operator of a store that a violation has occurred and the potential penalties that will apply for future violations.

B. Any store that violates or fails to comply with any of the requirements of this Chapter after a written warning notice has been issued for that violation shall be guilty of an infraction.

C. If a store has subsequent violations of this Chapter that are similar in kind to the violation addressed in a written warning notice, the following penalties will be imposed and shall be payable by the operator of the store:

1. A fine not exceeding one hundred dollars ($100.00) for the first violation after the written warning notice is given;

2. A fine not exceeding two hundred dollars ($200.00) for the second violation after the written warning notice is given; or

3. A fine not exceeding five hundred dollars ($500.00) for the third and any subsequent violations after the written warning notice is given.

D. A fine shall be imposed for each day a violation occurs or is allowed to continue.

E. All fines collected pursuant to this Chapter shall be used to assist with the implementation and enforcement of the requirements of this Chapter.

F. Any store operator who receives a written warning notice or fine may request an administrative review of the accuracy of the determination or the propriety of any fine issued, by filing a written notice of appeal with the City Manager no later than thirty (30) days after receipt of a written warning notice or fine, as applicable. The notice of appeal must include all facts supporting the appeal and any statements and evidence, including copies of all written documentation and a list of any witnesses that the appellant wishes to be considered in connection with the appeal. The appeal will be heard by a Hearing Officer designated by the City Manager. The Hearing Officer will conduct a hearing concerning the appeal within forty-five (45) days from the date that the notice of appeal is filed, or on a later date if agreed upon by the appellant and the City, and will give the appellant ten (10) days prior written notice of the date of the hearing. The Hearing Officer may sustain, rescind, or modify the written warning notice or fine, as applicable, by written decision. The Hearing Officer will have the power to waive any portion of the fine in a manner consistent with the decision. The decision of the Hearing Officer is final and effective on the date of service of the written decision, is not subject to further administrative review, and constitutes the final administrative decision. (ORD-11-0009, § 1, 2011)

8.62.090 Severability.

If any section, subsection, sentence, clause, or phrase of this ordinance is for any reason held to be invalid by a decision of any court of competent jurisdiction, that decision will not affect the validity of the remaining portions of the ordinance. (ORD-11-0009, § 1, 2011)

8.62.100 No conflict with federal or State law.

Nothing in this ordinance is intended to create any requirement, power or duty that is in conflict with any federal or State law. (ORD-11-0009 § 1, 2011)

CHAPTER 8.63 POLYSTYRENE FOOD PACKAGING

8.63.010 Purpose.

The purpose of this Chapter is to regulate the use of polystyrene food packaging in order to reduce and prevent the presence of this type of litter in the environment, protect public health and promote environmentally sustainable practices in the City. (ORD-18-0010 § 1, 2018)

8.63.020 Definitions.

A. "Applicant" means any individual, firm, limited liability company, association, partnership, political subdivision, government agency, municipality, industry, public or private corporation, or any other entity whatsoever who applies for a City of Long Beach special events permit or an exemption to the requirements of this Chapter.

B. "City facility" means any building, structure, property, park or open space owned, managed or leased by the City, its agents, agencies, or departments. This includes, but is not limited to, the Queen Mary, the Convention Center, the Aquarium, and the Long Beach Airport.

C. "City contractor" means any person who enters into an agreement with the City to furnish products or services to or for the City.

D. "City-permitted event" means any event, activity or meeting occurring under the auspices of a City-issued permit.

E. "City-sponsored event" means any event, activity or meeting organized or sponsored, in whole or in part, by the City or any department of the City.

F. "Compostable" means all the material in the product or package will break down, or otherwise become part of, usable compost (e.g., soil-conditioning material, mulch) in a safe and timely manner. Compostable material must be made of paper, certified compostable plastics that meet ASTM D6400 or ASTM D6868 for compostability or cellulose-based packaging capable of being decomposed through composting or anaerobic digestion.

G. "Department" means the Department of Public Works.

H. "Director" means the Director of the Department of Public Works, or his/her designee, who is hereby designated to issue a compliance order or an administrative citation to enforce this Chapter pursuant to Chapter 9.65 of the Long Beach Municipal Code or to grant an exemption to compliance with this Chapter pursuant to Section 8.63.050 of the Long Beach Municipal Code.

I. "Disposable food service ware" or "disposables" means single-use, disposable products used for serving or transporting prepared food, including but not limited to plates, bowls, trays, wrappers or wrapping, platters, cartons, clamshells, condiment containers, cups or drink ware, cup lids, or any other container in or on which prepared foods are placed or packaged for consumption. This does not include utensils.

J. "Food Provider" means any person or place, other than a "Small Food Provider," that provides or sells prepared food within the City to the general public to be consumed on the premises or for take-away consumption. "Food Provider" includes but is not limited to: (1) a grocery store, supermarket, restaurant, drive-thru, cafe, coffee shop, snack shop, public food market, farmers market, convenience store, or similar fixed place where prepared food is available for sale on the premises or for take-away consumption, and (2) any mobile store, food vendor, caterer, food truck, vending machine or similar mobile outlet. "Food Provider" also includes any Franchise restaurant, drive-thru, café, coffee-shop or the like. "Food Provider" also includes any organization, group or individual that regularly provides prepared food to its members or the general public as a part of its activities or services.

K. "Franchise" means a food facility in the City that operates under common ownership or

control with at least fifteen (15) other food facilities with the same name that offer for sale substantially the same menu items, or operates as a franchised outlet of a parent company with at least fifteen (15) other franchised outlets with the same name in the state that offer for sale substantially the same menu items.

L. "Small Food Provider" means a person or place that provides or sells prepared food within the City to the general public to be consumed on the premises or for take-away consumption, seating one hundred (100) or fewer persons.

M. "Person" means any person, business, corporation, or event organizer or promoter; public, nonprofit or private entity, agency or institution; or partnership, association or other organization or group, however organized.

N. "Plastic or Bio-Plastic straw" means a tube made predominantly of plastic derived from either petroleum or biologically based polymer, such as corn or plant sources, for transferring a beverage from its container to the mouth of the drinker. This includes compostable and biodegradable petroleum or biologically based polymer straws, but does not include straws that are made from non-plastic materials, such as paper, sugarcane, bamboo, etc.

O. "Polystyrene" means a thermoplastic petrochemical material utilizing the styrene monomer, including but not limited to, polystyrene foam or expanded polystyrene, processed by any number of techniques, including but not limited to fusion of polymer spheres (expandable bead polystyrene), injection molding, foam molding, or extrusion-blow molding (extruded foam polystyrene), and clear or solid polystyrene (oriented polystyrene). The recycle code for polystyrene is "6" or "PS," either alone or in combination with other letters. This definition applies to all polystyrene food service ware, regardless of whether it exhibits a recycle code.

P. "Polystyrene Beads" means expanded polystyrene foam beads used as filler for toys and beanbags and in crafts.

Q. "Polystyrene Cooler" means any cooler or ice chest made of polystyrene foam, where such foam is not fully encased in a durable material.

R. "Polystyrene food service ware" means disposable food service ware that contains or utilizes polystyrene. This includes but is not limited to cups, cup lids, condiment cups, food trays, plates, bowls, clamshells and any other product made primarily for food service use.

S. "Prepared food" means any food or beverage that is: (1) ready to consume without any further food preparation, alteration or repackaging; and (2) prepared, provided, sold or served by a Food Provider using any cooking, packaging or food preparation technique. Prepared food may be eaten either on or off the Food Provider's premises.

T. "Recyclable" means material that can be sorted, cleansed and reconstituted using the City's available Residential Recycling Program excluding Plastic containers labeled #6 and any Polystyrene.

U. "Recycle code" means a resin identification code placed on plastics to identify the material composition for separation of different types of plastics for recycling.

V. "Special events" means events that are open to the general public and take place within the public right-of-way or are located within a park and/or are coordinated through the City of Long Beach's special events permit process.

W. "Utensil" means a knife, fork, spoon, spork, chopstick, or the like, used for eating food. (ORD-20-0009 § 1, 2020; ORD-18-0010 § 1, 2018)

8.63.030 Prohibition against distribution or sale of polystyrene food service ware.

A. No Food Provider shall distribute or sell any polystyrene food service ware in conjunction with the sale of prepared food or beverages at any location within the City of Long Beach.

B. Food Providers that distribute prepared food or beverages in disposable food service ware shall: (1) distribute only disposables that are either Recyclable or Compostable, and if plastic, exhibit a recycle code other than No. 6 or PS; and/or (2) maintain documentation about the composition of any disposable food service ware that does not

exhibit a recycle code. Documentation may include information from the supplier or manufacturer, bulk packaging for the disposables, and any other relevant information demonstrating that the disposable material is not polystyrene and is either Recyclable or Compostable.

C. No person shall distribute or sell prepared food or beverages in any polystyrene food service ware at City facilities that have been rented, leased or are otherwise being used with permission of the City. If disposables are distributed or sold, they shall be either Recyclable or Compostable. This Subsection is limited to use of City facilities for which a person has entered into an agreement with the City to rent, lease or otherwise occupy a City facility. All facility rental agreements for any City facility shall include a provision requiring contracting parties to assume responsibility for preventing the utilization and/or distribution of polystyrene food service ware while using City facilities. The facility rental agreement shall indicate that a violating contractor's security deposit will be forfeited if the Director determines that polystyrene food service ware or disposables that are neither Recyclable nor Compostable was used in violation of the rental agreement.

D. No person shall use or distribute polystyrene food service ware at City-sponsored events, activities and City meetings open to the public. This Subsection shall apply to the function organizers, agents of the organizers, City contractors, and Food Providers.

E. The City, its departments, its City contractors, agents, and employees acting in their official capacity, shall not purchase, acquire or distribute for public use any polystyrene food service ware or disposables that are neither Recyclable nor Compostable, or Polystyrene Coolers.

F. All Food Providers shall certify compliance with this Chapter as part of the Environmental Health inspection process.

G. No person, vendor, business or event promoter in the City may sell, rent or otherwise provide any polystyrene food service ware product which is not wholly encapsulated or encased within a more durable material, except as exempted herein. This specifically includes, but is not limited to, cups, cup lids, condiment cups, food trays, plates, bowls, clamshells and other products primarily for food service use, as well as Polystyrene Coolers and ice chests.

H. No person, vendor, business or event promoter in the City shall sell, distribute, or otherwise provide polystyrene packing material, including, but not limited to, foam peanuts, packing peanuts, foam popcorn or packing noodles.

I. No person, vendor, business or event promoter may sell, rent, or otherwise distribute within the City meat and fish trays, produce trays or egg cartons made, in whole or in part, from polystyrene, either as separate items or as part of the sale of meat, fish, poultry, vegetables, fruit, or eggs sold to consumers.

J. Straws and utensils shall only be provided upon customer request at all food establishments, including at City facilities. All straws must not be plastic or bio-plastic straws. (ORD-20-0009 § 2, 2020; ORD-18-0010 § 1, 2018)

8.63.040 Administrative rules and regulations.

The Director may adopt administrative rules and regulations not inconsistent with provisions of this Chapter and state law as needed for the purpose of clarifying any of the administrative requirements of this Chapter, such as but not limited to, specifying the types of acceptable alternative food packaging that meet the requirements of this Chapter and/or establishing frequency and protocol of City regulatory inspections and overall compliance monitoring. A proposed rule or regulation shall be posted at City Hall and public counters, providing notice that it is to be adopted no earlier than twenty-one (21) calendar days from the date on the posted notice and indicating the manner in which written comments may be provided to the Director. A copy of the final adopted rule or regulation shall be posted in City Hall and public counters no later than ten (10) days prior to the effective date of the rule or regulation. A copy of all adopted administrative rules and regula-

tions shall be on file in the Director's office. (ORD-18-0010 § 1, 2018)

8.63.050 Exemption from compliance with this Chapter.

A. The following are exempt from the provisions of this Chapter:

1. Food prepared or packaged outside of the City, provided such food is not altered, packaged or repackaged within the City limits.

2. Coolers and ice chests, other than those defined as Polystyrene Coolers in this Chapter.

3. Food brought by individuals for personal consumption to City facilities, including but not limited to City parks, provided the City facility is being used for individual recreation or similar purposes and such facility use is not part of a larger organized event requiring a special events permit from the City.

4. City-sponsored or City-permitted events for which authorizations or permits were issued prior to the operative date of this ordinance; except events for which multi-year authorizations or permits were issued, which must comply within three hundred sixty-five (365) days of the operative date of this ordinance.

5. During a locally declared emergency, the City, emergency response agencies operating within the City, users of City facilities, and Food Providers and beverage providers shall be exempt from the provisions of this Chapter.

6. The Food Provider or beverage provider provides or distributes a plastic beverage straw upon request to individuals with disabilities as needed to comply with the Americans with Disabilities Act.

B. Food Providers that are obligated to purchase or have purchased polystyrene food service ware under a contract entered into within the year prior to the operative date of this ordinance are exempt from the provisions of this Chapter for six (6) months following its operative date.

C. The Director may exempt any person from Section 8.63.030 following the operative date of this ordinance, as follows:

1. A request for an exemption shall be filed in writing with the Director and shall include documentation of the reason for the claimed exemption and any other information necessary for the department to make its decision. The department may require the Applicant to provide additional information as necessary to make the required determinations.

2. The Director may grant an exemption for a maximum of one (1) year, with or without conditions, upon finding that compliance would create an undue hardship. Applications for exemption renewals will also be considered. Undue hardship shall be construed to include but not be limited to situations where:

a. There are no reasonable alternatives to polystyrene food service ware for reasons that are unique to the Applicant; or

b. Compliance with the requirements of this Chapter would deprive a person of a legally protected right.

3. The Director's written decision on the exemption is effective within ten (10) days of the decision. Decisions of the Director may be appealed by the person applying for the exemption utilizing the process outlined in Section 8.63.080. (ORD-20-0009 § 3, 2020; ORD-18-0010 § 1, 2018)

8.63.060 Authority to inspect and to monitor.

This Chapter shall be enforced by the City Health Officer, or designee, or by the Director of the Long Beach Public Works Department, or designee. These persons shall be known as enforcement officials and are authorized to take any actions necessary to enforce this Chapter, including inspection and monitoring of affected locations to determine compliance with this Chapter. (ORD-18-0010 § 1, 2018)

8.63.070 Operative date.

A. No City facilities, City contractors, City-sponsored events or City-permitted events shall distribute or utilize disposable food service ware containing polystyrene on or after three (3) months following the adoption of the ordinance codified in this Chapter by the City Council. City-sponsored or City-permitted events for which authorizations or permits were issued prior to the opera-

tive date of this Ordinance are exempt as provided in Subsection 8.63.050.A.4. City-sponsored or City-permitted events which are authorized or permitted for multiple years must comply within three hundred sixty-five (365) days of the operative of this ordinance.

B. No Food Provider shall distribute or utilize disposable food service ware containing polystyrene on or after nine (9) months following the operative date of the ordinance codified in this Chapter by the City Council.

C. No Small Food Provider shall distribute or utilize disposable food service ware containing polystyrene on or after eighteen (18) months following the operative date of the ordinance codified in this Chapter by the City Council.

D. No person shall sell or distribute Polystyrene Beads for crafts or as filler for bean bags, or Polystyrene Coolers on or after eighteen (18) months following the adoption of the ordinance codified in this Chapter by the City Council.

E. The prohibition against retail sales contained in Sections 8.63.030 (G), (H) and (I) shall be effective on or after October 1, 2020. (ORD-20-0009 § 4, 2020; ORD-18-0010 § 1, 2018)

8.63.080 Appeal.

Any person or entity aggrieved by any decision or finding under the provisions of this Chapter with respect to citations for violations of this Chapter or granting or denying an application for an exemption from compliance with this Chapter, may appeal such decision or finding. An appeal must be filed within three (3) days after receipt of notice of any protested decision or finding by filing with the Director a letter of appeal briefly stating therein the basis for such appeal. A hearing shall be held on a date no more than ten (10) days after receipt of the letter of appeal. Appellant shall be given at least five (5) days' notice of the time and place of the hearing. A hearing officer, appointed by the City Manager, shall give the appellant, and any other interested party, a reasonable opportunity to be heard, in order to show cause why the decision or finding should not be upheld. In all such cases, the burden of proof shall be upon the appellant to show that there was no substantial evidence to support the decision or finding appealed. At the conclusion of the hearing, the hearing officer shall make a final and conclusive determination. The appeal process set forth in this Section does not apply to administrative citations or to orders to comply pursuant to Chapter 9.65. (ORD-18-0010 § 1, 2018)

8.63.090 Violation of this Chapter.

It shall be unlawful and a violation of this Chapter to fail to comply with any provision of this Chapter. (ORD-18-0010 § 1, 2018)

8.63.100 Enforcement and violation - penalty.

A. It shall be unlawful for any person to violate the provisions of this Chapter. A violation of this Chapter shall be punishable under the administrative citation procedures set forth in Chapter 9.65. The fine imposed for a particular violation shall be in the amount set forth in the administrative citation schedule established by resolution of the City Council. The Director has primary responsibility for enforcement of this Chapter.

B. All fines collected pursuant to this Chapter shall be deposited in the Refuse Fund to assist the department with its costs of implementing and enforcing the requirements of this Chapter. (ORD-18-0010 § 1, 2018)

8.63.110 Remedies not exclusive.

To the maximum extent permitted by law, administrative remedies specified in this Chapter are in addition to and do not supersede or limit any and all other remedies, civil or criminal. The remedies provided for herein shall be cumulative and not exclusive. (ORD-18-0010 § 1, 2018)

8.63.120 Severability.

If any section, subsection, subdivision, paragraph, sentence, clause or phrase of this Chapter, or any part thereof is for any reason held to be unconstitutional or invalid or ineffective by any court of competent jurisdiction, such decision shall not affect the validity or effectiveness of the remaining portions of this Chapter or any part

thereof. The City Council hereby declares that it would have passed each section, subsection, subdivision, paragraph, sentence, clause or phrase of this Chapter irrespective of the fact that one or more sections, subsections, subdivisions, paragraphs, sentences, clauses or phrases be declared unconstitutional or invalid or effective. To this end the provisions of this Chapter are declared to be severable. (ORD-18-0010 § 1, 2018)

CHAPTER 8.64 AIR POLLUTION*

8.64.010 Director defined.

"Director" means the officer or employee of the City, or of the County of Los Angeles, in the event the City contracts with the County for the enforcement of this Chapter, charged with responsibility for the enforcement of this Chapter. (Prior code § 5400)

8.64.020 Smoke discharge.

No person either by himself, employee or agent, or as an employee or agent of another shall cause, suffer, or permit to be discharged from any source whatsoever, any smoke, dust, soot or fumes for a period, or periods, aggregating more than three (3) minutes in any one (1) hour, which is:

A. Equal to or greater in density than that designated as No. 2 on the Ringelmann Chart, as published by the United States Bureau of Mines; or

B. So dense as to obscure the passage of light to a degree equal to or greater than does smoke described in Subsection 8.64.020.A. (Prior code § 5400.1)

8.64.030 Offensive matter discharge.

No person shall, either by himself, his employee or agent, or as an employee or agent of another, cause, suffer, or permit to be discharged from any source whatsoever such quantities of charred paper, smoke, dust, soot, grime, carbon, particulate matter, or other material which cause injury, detriment, nuisance or annoyance to any considerable number of persons or to the public or which endanger the comfort, repose, health or safety of any such persons or the public or which cause or have a natural tendency to cause injury or damage to business or property. (Prior code § 5400.2)

8.64.040 Fumes and odors.

No person shall, either by himself, his employee or agent, or as an employee or agent of another, cause, suffer, or permit to be discharged from any source whatsoever such quantities of fumes, gases, odors, smells, acids which cause injury, detriment, nuisance or annoyance to any considerable number of persons or to the public or which endanger the comfort, repose, health or safety of any such persons or the public or which cause or have a natural tendency to cause injury or damage to business or property. (Prior code § 5400.3)

8.64.050 Exceptions.

A. The prohibitions of this Chapter do not apply to any action either positively permitted or prohibited by constitutional provision or by general law.

B. The provisions of Section 8.64.020 do not apply to the use of an orchard or citrus grove heater which:

1. Does not produce unconsumed solid carbonaceous matter at a rate in excess of one (1) gram per minute; and

2. If petroleum, or any product thereof is used as fuel, does not produce products of combustion arising therefrom containing unconsumed solid carbonaceous matter in excess of twenty (20) grams per pound of fuel consumed.

C. The provisions of this Chapter do not apply to smoke from fires set by or permitted by the Director of Public Service for the purpose of weed abatement, or by the Fire Chief for the prevention of a fire hazard, or the instruction of members of his staff in the methods of fighting fire. (Prior code § 5400.4)

*State law reference—Provisions on the role of local authorities in the control of air pollution, Health and S. C. § 40000.

8.64.060 Right of entry for inspection.

The Director, during reasonable hours, for the purpose of enforcing or administering this Chapter, may enter every building, premises, or other place, except a private residence. No person shall in any way deny, obstruct, or hamper such entrance. (Prior code § 5400.5)

8.64.070 Variance—Authorized.

The provisions of this Chapter do not prohibit the discharge of matter to a greater extent or for a longer time, or for both, than permitted in this Chapter if not of a greater extent or longer than the Director finds necessary pursuant to the provisions of this Chapter. (Prior code § 5400.6)

8.64.080 Variance—Hearing.

The Director may on his own motion, or at the request of any person, hold a hearing to determine under what conditions and to what extent the discharge of matter to a greater extent or for a longer time, or both, than that permitted by this Chapter is necessary. (Prior code § 5400.7)

8.64.090 Variance—Setting standards.

If the Director finds that because of conditions beyond control necessary equipment is not obtainable with which to make changes necessary to reduce such discharge in extent or time, or both, to that permitted by this Chapter, he may prescribe other and different standards applicable to plants and equipment operated either by named classes of industries or person, or to the opera-

tions of separate persons. (Prior code § 5400.8)

8.64.100 Variance—Refuse or rubbish burning.

If the Director finds that the burning of rubbish or refuse is necessary to prevent a fire or health hazard and also finds that neither adequate equipment, nor facilities are available for the disposal of such rubbish in a manner conforming with the provisions of this Chapter, he may prescribe other and different standards not more onerous applicable either to named classes of rubbish disposal or persons, or to the operations of separate persons. (Prior code § 5400.9)

8.64.110 Variance—Effective time.

A. The Director in making any order permitting a variation may specify the time during which such order will be effective.

B. Unless an earlier date is specified in the order, every order permitting a variation shall expire six (6) months after it is made. (Prior code § 5400.10)

8.64.120 Variance—Modification or revocation—Authorized.

The Director may revoke or modify any order permitting variation after a public hearing held upon not less than ten (10) days′ notice. (Prior code § 5400.11)

8.64.130 Variance—Modification or revocation—Hearing.

The Director shall serve notice of the time and place of a hearing to remove or modify any order permitting a variation not less than ten (10) days prior to such hearing upon all persons who will be subjected to greater restrictions if such order is revoked or modified as proposed and upon all other persons who have filed with the Director a written request for such notification, either in the manner required by law for the service of summons or by first class mail postage prepaid. (Prior code § 5400.12)

CHAPTER 8.65 MOBILE SOURCE AIR POLLUTION REDUCTION

8.65.010 Findings and intent.

A. The City finds and declares that:

1. The City is committed to improving the public health, safety and welfare, including air quality;

2. Mobile sources are a major contributor to air pollution in the South Coast Air Basin;

3. Air quality goals for the region established by State law cannot be met without reducing air pollution from mobile sources;

4. The South Coast Air Quality Management Plan (″AQMP″) calls upon cities and counties to reduce emissions from motor vehicles consistent with the requirements of the California Clean Air Act of 1988, by developing and implementing mobile source air pollution reduction programs;

5. Such programs place demands upon the City′s funds, those programs should be financed by shifting the responsibility for financing from the general fund to the motor vehicles creating the demand, to the greatest extent possible;

6. Section 44223, added to the Health and Safety Code by action of the California Legislature on September 30, 1990 (Chapter 1705 of the 1990 Statutes), authorizes the South Coast Air Quality Management District (″SCAQMD″) to impose an additional motor vehicle registration fee of two dollars ($2.00), commencing on April 1, 1991, increasing to four dollars ($4.00), commencing on April 1, 1992, to finance the implementation of transportation measures embodied in the AQMP and provisions of the California Clean Air Act;

7. Forty cents ($0.40) of every dollar ($1.00) collected under Health and Safety Code § 44223, shall be distributed to cities and counties located in the South Coast Air Quality Management District that comply with Health and Safety Code § 44243 of the Code, based on the jurisdictions′ prorated share of population as defined by the State Department of Finance;

8. The City is located within the South Coast Air Quality Management District and is eligible to receive a portion of the revenues from the additional motor vehicle registration fees contingent upon enactment of this Chapter;

9. The prorated share of the fee revenues for cities that fail to adopt provisions pursuant to Health and Safety Code § 44243(b)(3), shall be distributed instead to the jurisdictions within the district that have adopted such provisions; and

10. The imposition of the additional motor vehicle registration fee by the SCAQMD to finance mobile source air pollution reduction programs is in the best interest of the City and promotes the general welfare of its residents.

B. This Chapter is intended to support the SCAQMD's imposition of the vehicle registration fee and to bring the City into compliance with the requirements set forth in Health and Safety Code § 44243, in order to receive fee revenues for the purpose of implementing programs to reduce air pollution from motor vehicles. (Ord. C-6920 § 1 (part), 1991)

8.65.020 Definitions.

As used in this Chapter, the following words and phrases shall have meanings attributed to them as follows:

A. "City" means the City of Long Beach, California.

B. "Fee Administrator" means the Director of Financial Management of the City or the Director's designee.

C. "Mobile source air pollution reduction program" means any program or project implemented by the City to reduce air pollution from motor vehicles which it determines will be consistent with the California Clean Air Act of 1988, or the plan proposed pursuant to Article 5 (commencing with Section 40460) of Chapter 5.5 of Part 3 of the California Health and Safety Code.

D. "SCAQMD" means the South Coast Air Quality Management District. (Ord. C-6920 § 1 (part), 1991)

8.65.030 Administration of vehicle registration fee.

A. The additional vehicle registration fees disbursed by the SCAQMD and remitted to the City, pursuant to the ordinance codified in this Section, shall be accepted by the Fee Administrator.

B. The Fee Administrator shall establish a Special Revenue Fund, and upon receipt of vehicle registration fees, the Fee Administrator shall deposit such funds into the Special Revenue Fund. All interest earned by the Special Revenue Fund shall be credited only to that fund.

C. All revenues received from the SCAQMD and deposited in the Special Revenue Fund shall be exclusively expended on mobile source emission reduction programs as defined in Subsection 8.65.020.C. Such revenues and any interest earned on the revenues shall be expended within one (1) year of the completion of the programs. (Ord. C-6920 § 1 (part), 1991)

8.65.040 Audits.

City shall consent to an audit of all programs and projects funded by vehicle registration fee revenues received from the SCAQMD pursuant to Health and Safety Code § 44223. The audit shall be conducted during reasonable times and normal business hours by an independent Auditor selected by the SCAQMD as provided in Health and Safety Code §§ 44244 and 44244.1(a), and prior written notice of the audit shall be given to City. (Ord. C-6920 § 1 (part), 1991)

8.65.050 Legal construction.

The provisions of this Chapter shall be construed as necessary to effectively carry out its purposes, which are hereby found and declared to be in furtherance of the public health, safety, welfare and convenience. (Ord. C-6920 § 1 (part), 1991)

CHAPTER 8.68 SMOKING IN PUBLIC PLACES*

8.68.010 Purpose and findings.

The City Council finds that the smoking of tobacco, or any other weed or plant, is a medically documented danger to health and a material annoyance, inconvenience, discomfort and health hazard to those who are present in confined spaces, and in order to reduce exposure to environmental tobacco smoke and to serve the public health, safety and welfare, the declared purpose of this Chapter is to prohibit the smoking of tobacco, or any other weed or plant, in public places and places of employment as stated and required in this Chapter. (ORD-14-0003 § 2, 2014)

8.68.020 Definitions.

The following words and phrases, whenever used in this Chapter, shall be given the following definitions:

A. ″Adjacent water areas″ shall mean fifty feet (50′) seaward of the mean high tide line of the City beaches.

B. ″Bar″ means an area which is devoted to serving of alcoholic beverages and in which the service of food is only incidental to the consumption of such beverages. Bar shall also include a nightclub or cabaret where entertainment and/or dancing are provided in addition to the consumption of alcoholic beverages or food.

C. ″Beach bike path″ shall mean that portion of the bike path located on the sand areas of the beach from the eastern edge of the Long Beach Shoreline Marina parking lot at approximately Alamitos Avenue easterly to the southeastern corner of the intersection of Ocean Boulevard at approximately Bayshore Avenue.

D. ″Beach launch ramps″ shall mean the launch ramps located at the foot of Claremont Avenue and Granada Avenue.

E. ″Childcare facility″ means any location or portion thereof where children other than those of the owner, operator or proprietor are cared for or supervised in exchange for anything of value.

F. ″Cigar″ shall have the same definition as California Health and Safety Code § 104550, as currently defined or as may be amended.

G. ″Cigarette″ shall have the same definition as California Health and Safety Code § 104556 as currently defined or as may be amended.

H. ″City facility″ means any enclosed structure wherever owned or used by the City of Long Beach for its operations or activities.

I. ″City vehicle″ means any vehicle owned and operated by the City for public purposes.

J. ″Eating establishment″ means coffee shop, cafeteria, short order cafe, luncheonette, sandwich shop, soda fountain, restaurant, gaming club, bar, tavern, or any other establishment serving food.

K. ″Electronic cigarette″ means an electronic and/or battery-operated device, the use of which may resemble smoking, which can be used to deliver an inhaled dose of nicotine or other substances. ″Electronic Cigarette″ includes any such device, whether manufactured, distributed, marketed, or sold as an electronic cigarette, an electronic cigar, an electronic cigarillo, an electronic pipe, an electronic hookah, or any other product name or descriptor.

L. ″Employee″ means any person who is employed by any employer for direct or indirect monetary wages or profit.

M. ″Employer″ means any person who employs the services of any person other than himself or herself.

N. ″Enclosed″ means closed in by a roof and four (4) walls with appropriate openings for ingress and egress but does not include areas commonly described as public lobbies.

O. ″Motion picture theater″ means any theater engaged in the business of exhibiting motion pictures.

***Editor's note**—ORD-14-0003 § 2, adopted Mar. 4, 2014, amended Ch. 8.68 in its entirety to read as herein set out. Former Ch. 8.68, §§ 8.68.010—8.68.210, pertained to similar subject matter, and derived from: Ord. C-6916 § 1 (part), 1991; Ord. C-7132 §§ 1—6, 1993; Ord. C-7155 § 1, 1993; Ord. C-7786 § 1, 2002; Ord. C-7955, § 1, 2004; ORD-05-0015 §§ 1, 3, 2005; ORD-09-0002, §§ 1—5, 2009; ORD-09-0025, §§ 1, 2, 2009; ORD-09-0026, § 1, 2009; ORD-09-0038, §§ 1, 2, 2009; ORD-10-0034, § 1, 2010; ORD-11-0008, § 1, 2011; ORD-11-0030, § 4, 2011; and ORD-13-0017, § 1, 2013.

P. ″Outdoor dining area″ means an outdoor seating area of a publicly or privately owned eating establishment that is dedicated, designed, established or regularly used as a place for the consumption of food or drinks, and all non-enclosed areas within twenty feet (20′) thereof.

Q. ″Playground″, for purposes of California Health and Safety Code § 104495, is more specifically defined to mean twenty-five feet (25′) from the edge of a sand area within a City park or recreational area specifically designed to be used by children and that has play equipment installed in it.

R. ″Public place″ means any enclosed area to which the public is invited or in which the public is permitted, including, but not limited to, retail stores, retail service establishments, retail food production and marketing establishments, restaurants, theaters, auditoriums, gymnasiums, waiting rooms, reception areas, educational facilities, health facilities, public transportation facilities, bowling alleys, bingo parlors, hair salons, laundromats, gaming clubs, bars, taverns, hotel and motel lobbies. A private residence is not a ″public place″, except that the enclosed common areas of apartment or condominium structures, if any, shall be considered ″public places″ for purposes of Section 8.68.060.

S. ″Service line″ means an indoor line or area in which persons await service of any kind, regardless of whether or not such service involves the exchange of money. Such service shall include, but is not limited to, sales, providing information, directions, or advice and transfers of money or goods.

T. ″Smoke″ or ″Smoking″ shall mean the carrying of a lighted pipe, lighted cigar, or lighted cigarette of any kind, or the lighting of a pipe, cigar or cigarette of any kind, including, but not limited to, tobacco, or any other weed or plant.

U. ″Smoking lounge″ means any business establishment that is dedicated to the smoking of tobacco products, including, but not limited to, establishments known variously as cigar lounges, hookah lounges or tobacco clubs. For purposes of this Chapter, ″smoking lounge″ means private smokers′ lounge as defined in Section 6404.5 of the California Labor Code.

V. ″Workplace″ means any enclosed area of a structure or portion thereof occupied by any entity and frequented by employees during the normal course of their employment where clerical, professional, manufacturing, business services or other normal and customary activities of the entity are performed or where other work is done at that location. Workplace also includes, but is not limited to, spaces in office buildings, medical office waiting rooms, libraries, museums, gaming clubs, bars, taverns, employee lounges, employee breakrooms, conference rooms and employee cafeterias. Workplace does not include any of the following: a private home, except where such home is used as a ″childcare facility″ as defined in Subsection 8.68.020.E, and any ″smoking lounge″ as defined in Subsection 8.68.020.U that satisfies the conditions specified in Subsection 8.68.060.B. (ORD-18-0032 § 1, 2018; ORD-14-0003 § 2, 2014)

8.68.030 Smoking prohibited—Elevators.

Smoking is prohibited and is unlawful within elevators in buildings generally used by and open to the public, including elevators in office, hotel and multifamily buildings. (ORD-14-0003 § 2, 2014)

8.68.040 Smoking prohibited—Hospitals, healthcare facilities and childcare facilities.

A. Smoking is prohibited in public areas of healthcare facilities and hospitals, as defined in California Health and Safety Code § 1250.

B. ″Staff and visitor smoking prohibited″ signs shall be conspicuously posted in public areas of healthcare facilities.

C. Smoking is prohibited in all childcare facilities as defined in Subsection 8.68.020.E. (ORD-14-0003 § 2, 2014)

8.68.050 Smoking prohibited—Public meeting rooms.

Smoking is prohibited and is unlawful in public meeting rooms, hearing rooms, conference rooms, chambers and places of public assembly in which public business is conducted, when the pub-

lic business requires or permits direct participation or observation by the general public. (ORD-14-0003 § 2, 2014)

8.68.060 Smoking prohibited—Enclosed public places.

A. Smoking is prohibited and is unlawful in every enclosed "public place" as defined in Subsection 8.68.020.R. Every owner, manager or operator of such facility shall post signs conspicuously in the premises stating that smoking is prohibited within the "public place" as defined in Section 8.68.020 and in the case of motion picture theaters, such information shall be shown upon the screen for at least five (5) seconds before showing feature motion pictures.

B. This Section is not intended to prohibit smoking in any "smoking lounge" as defined in Subsection 8.68.020.U and in compliance with the provisions of Chapter 5.88. (ORD-18-0032 § 2, 2018; ORD-14-0003 § 2, 2014)

8.68.065 Smoking prohibited—City beaches, beach bike path and beach launch ramps.

Smoking shall be prohibited on all sand areas and adjacent water areas of City beaches, the beach bike path and beach launch ramps, with the exception of permitted beach concessions and permitted activities, including, but not limited to filming and/or special events. (ORD-18-0032 § 3, 2018; ORD-14-0003 § 2, 2014)

8.68.066 Smoking prohibited—City parks and other recreation areas.

A. Smoking shall be prohibited in any outdoor area that has been improved or developed by or on behalf of the City, and open to the general public for park or open space use, including, but not limited to, public parks, picnic areas, playgrounds, sports or playing fields, walking paths, gardens, hiking trails, bike paths, and any other areas designated a park by the Director of the Department of Parks and Recreation.

B. The provisions of this Section shall not apply to Municipal golf courses, or permitted activities, including, but not limited to filming and/or special events. (ORD-14-0003 § 2, 2014)

8.68.070 Smoking prohibited—Public restrooms.

Smoking is prohibited and is unlawful in public restrooms. (ORD-14-0003 § 2, 2014)

8.68.075 Smoking prohibited—Bus stops.

Smoking is prohibited and is unlawful at and within twenty feet (20′) of any bus stop, private residential property, or while actively passing on the way to another destination. (ORD-18-0032 § 4, 2018; ORD-14-0003 § 2, 2014)

8.68.080 Smoking prohibited—Indoor service lines.

Smoking is prohibited and is unlawful in indoor service lines in which more than one (1) person is giving or receiving services of any kind. (ORD-14-0003 § 2, 2014)

8.68.085 Smoking prohibited—Farmers′ markets.

Smoking is prohibited and is unlawful at any farmers′ market and within twenty feet (20′) of all entrances and exits of farmers′ markets, as defined in Subsection 3.80.180.G of the Long Beach Municipal Code. (ORD-14-0003 § 2, 2014)

8.68.090 Smoking prohibited—Eating establishments, bars, and outdoor dining areas.

A. Smoking is prohibited and is unlawful in every publicly or privately owned enclosed eating establishment, including bars and restaurants.

B. Smoking is prohibited and is unlawful in all outdoor dining areas as defined in Subsection 8.68.020.P, except after 11:00 P.M. This Subsection is not intended to regulate smoking in the following places and under the following conditions:

1. A non-enclosed area of a drinking establishment, such as a bar, that sells or offers for sale alcoholic beverages pursuant to a license from the Department of Alcoholic Beverage Control (ABC),

limits entry to patrons age eighteen (18) and older, and where food service, if any, is only incidental to the sale of alcoholic beverages. For purposes of this paragraph, a drinking establishment shall not include a business with an ABC license type 41 or type 47, both of which are issued to restaurants and require substantial sales of meals for consumption on the premises.

2. A non-enclosed area of any eating establishment, including bars and restaurants, for which that limited outdoor area is designated for smoking during a special event pursuant to a special event permit issued by the City under Chapter 5.60 of this Code. Unless otherwise authorized by the City Manager in his/her sole discretion, a special event under this Subsection shall not last longer than ten (10) consecutive calendar days at one (1) site, and shall be limited to not more than twice in any calendar year at any one (1) site.

C. Establishments that are exempt from Subsection B above, and which maintain an outdoor dining area, shall maintain a contiguous no smoking area of not less than two-thirds (2/3) of both the outdoor seating capacity or the outdoor floor space in which customers are being served. (ORD-18-0032 § 5, 2018; ORD-14-0003 § 2, 2014)

8.68.095 Mobile food preparation vehicle.

Smoking is prohibited and is unlawful at and within forty feet (40′) of any operating mobile food preparation vehicle, as defined in Section 5.37.110 of the Long Beach Municipal Code. (ORD-14-0003 § 2, 2014)

8.68.100 Smoking prohibited—Retail food production and marketing establishments.

Smoking is prohibited and unlawful in any retail food marketing establishments including grocery stores and supermarkets. (ORD-14-0003 § 2, 2014)

8.68.110 Regulation of smoking in the workplace.

A. Smoking is prohibited in all workplaces in the City of Long Beach as defined in Subsection 8.68.020.V.

B. Smoking is prohibited in conference and meeting rooms, classrooms, auditoriums, restrooms, medical facilities, hallways, elevators, cafeteria, lunchrooms, employee lounges, employee breakrooms, designated eating areas and common areas.

C. This Section is not intended to regulate smoking in the following places and under the following conditions:

1. A private home which may serve as a workplace except when used as a ″childcare facility″ as defined in Subsection 8.68.020.E; or

2. Any property owned, leased or used by governmental agencies other than the City of Long Beach.

D. The provisions of Sections 8.68.090 and 8.68.100 shall govern the public access areas of such facilities; however, such employers shall otherwise comply with provisions of this Section 8.68.110. (ORD-18-0032 § 6, 2018; ORD-14-0003 § 2, 2014)

8.68.120 Prohibition of electronic cigarette use in smoke-free places and other regulations.

A. It shall be a violation of this Chapter to use an electronic cigarette in any place within the City where smoking is prohibited by law.

B. No person or entity shall knowingly permit the use of electronic cigarettes in an area under the legal or de facto control of that person or entity and in which smoking is prohibited by law.

C. All other regulations and prohibitions contained in this Chapter relating to tobacco products shall apply the same to electronic cigarettes. (ORD-14-0003 § 2, 2014)

8.68.130 Posting of signs required.

A. Except where other signs are required, whenever in this Code smoking is prohibited, conspicuous signs shall be posted so stating, containing all capital lettering not less than one inch (1″) in height on a contrasting background. It is the duty of the owner, operator, manager, or other persons having control of such room, building,

workplace, or other place where smoking is prohibited, to post such signs or to cause such signs to be posted.

B. A warning sign must be posted at each sales counter and on each vending machine where tobacco products are sold. This warning sign must be posted in a place that can be clearly seen by the public, and the size and format of the warning sign shall comply with California Code of Regulations, Title 17.

C. Notwithstanding this Section, the presence or absence of signs shall not be a defense to the violation of any other provision of this Chapter. (ORD-14-0003 § 2, 2014)

8.68.140 Structural modifications not required.

A. It shall be the responsibility of employers to provide smoke-free areas for nonsmokers within existing facilities to the maximum extent possible, but employers are not required to incur any expense to make structural or other physical modifications in providing these areas.

B. Nothing in this Chapter shall require the owner, operator, or manager of any theater, auditorium, healthcare facility, or any building, facility, structure, or business, to incur any expense to make structural or other physical modifications to any area or workplace.

C. Nothing in this Section shall relieve any person from the duty to post signs or adopt policies as required by this Chapter. (ORD-14-0003 § 2, 2014)

8.68.150 Administration and enforcement.

A. The no smoking ordinance established by this Chapter shall be administered by the Department of Health and Human Services.

B. Any person may register a complaint for an alleged non-compliance with this Chapter with the Department of Health and Human Services. (ORD-14-0003 § 2, 2014)

8.68.160 Exemptions; Cannabis Special Events.

A. Any owner or manager of a business or other establishment subject to this Chapter may apply to the City Health Officer for an exemption or modification to any provisions of this Chapter due to unusual circumstances or conditions.

1. Such exemption shall be granted only if the City Health Officer finds from the evidence presented by the applicant for exemption at a public hearing that the applicant cannot comply with the provisions of this Chapter for which an exemption is requested without incurring expenses for structural or other physical modifications, other than posting signs, to buildings and structures.

2. The applicant for an exemption shall pay concurrent with the application, the fee, as prescribed by resolution of the City Council, to cover cost of the hearing and noticing of the hearing.

B. Notwithstanding any other provision of this Chapter, a cannabis special event that has been permitted pursuant Title 5, Chapter 92, Division XIII of this Code is exempt from the provisions of this Chapter for the duration of the permitted cannabis special event. (ORD-26-0006 § 2, 2026; ORD-14-0003 § 2, 2014)

8.68.170 City Facilities.

A. There shall be no smoking in any "City facility" as defined in Subsection 8.68.020.H or in any "City vehicle" as defined in Subsection 8.68.020.I or in any covered area of the Long Beach Airport, notwithstanding any exception or exemption contained in any other provision of this Chapter.

B. Notwithstanding paragraph A, a cannabis special event that has been permitted pursuant Title 5, Chapter 92, Division XIII of this Code to take place in a "City facility" as defined in Subsection 8.68.020.H is exempt from the provisions of this Chapter for the duration of the permitted cannabis special event. (ORD-26-0006 § 3, 2026; ORD-14-0003 § 2, 2014)

8.68.180 Tobacco products distribution.

A. No person or entity shall sell or otherwise distribute any cigarette or other tobacco product unless such cigarette or tobacco product is in the manufacturer's original package with all required health warnings.

B. No person or entity shall distribute or furnish without charge or cause or authorize distribution or furnishing of any cigarette or other tobacco product in any public place or at any event to which the public is invited unless such activity is authorized in a permit for staging of a special event which is subject to revocation for violation of the requirement of Subsection A of this Section.

C. The provision of Subsection B of this Section shall not apply to private functions or nightclubs, where minors are not present and such distribution is authorized by the proprietor. (ORD-14-0003 § 2, 2014)

8.68.190 Billboard advertising.

No person or entity shall place, establish, keep, maintain or locate any advertisement for any tobacco product on any billboard within five hundred feet (500') of or so oriented that the message portion of the sign is visible from any school, childcare center, nursery school, hospital, place of worship or recreational facility. (ORD-14-0003 § 2, 2014)

8.68.200 Violations and penalties.

Any person or entity violating any provision of this Chapter is guilty of an infraction, and upon conviction thereof, shall be punished by a fine not to exceed one hundred dollars ($100.00) for a first violation, two hundred dollars ($200.00) for a second violation within one (1) year, and five hundred dollars ($500.00) for a third and for each subsequent violation within one (1) year. (ORD-14-0003 § 2, 2014)

8.68.210 Retaliation.

No person shall discharge, refuse to hire, or in any other manner retaliate against any employee, applicant, or patron exercising any right or privilege created by this Chapter. (ORD-14-0003 § 2, 2014)

8.68.220 Severability.

All provisions of this Chapter are severable. If any part or provision of this Chapter, or the application thereof to any person or circumstance, is held invalid for any reason, the remainder of this Chapter, including the application of such part or provision to persons or circumstances other than those to which it is held invalid, shall not be affected and shall remain in full force and effect. (ORD-14-0003 § 2, 2014)

CHAPTER 8.72 SAWDUST STORAGE

8.72.010 Storage in garage prohibited.

No person shall store or use sawdust, wood shavings or wood turnings in any public or private garage, automobile filling station, automobile repair shop, upon vacant property used for the sale of new or secondhand automobiles or upon vacant property used for automobile parking purposes. (Prior code § 4615)

CHAPTER 8.76 PROPERTY MAINTENANCE*

8.76.010 Prohibited uses.

It is a public nuisance for any person owning, leasing, occupying or having charge or possession of any premises in this City to maintain such premises in such manner that any of the following conditions are found to exist thereon and it is a public nuisance for any person causing the following conditions on any premises:

A. Buildings which are abandoned, boarded up, partially destroyed, or left for unreasonably long periods of time in a state of partial construction, provided that any unfinished building or structure which has been in the course of construction three (3) years or more, and where the appearance and other conditions of said unfinished building or structure are such that the unfinished structure substantially detracts from the appearance of the immediate neighborhood or reduces the value of property in the immediate neighbor-

***Cross reference—**Provisions on the abatement of nuisances, see the City Charter.

State law reference—Provisions on public nuisances, Pen. C. §§ 370—372.

hood or is a nuisance, shall be deemed and presumed to have been left for an unreasonably long period of time in the sense of this Subsection;

B. Any building on which the condition of the paint or roof covering has become so deteriorated as to permit decay, discoloration, excessive checking, cracking or warping so as to render the building unsightly or in a state of disrepair;

C. Broken windows constituting hazardous conditions and inviting trespassers and malicious mischief;

D. Overgrown vegetation, cultivated or uncultivated, which is likely to harbor rats, vermin or other nuisances or which causes detriment to neighboring properties or property values;

E. Dead, decayed, diseased or hazardous trees, vegetation, weeds and debris constituting unsightly appearance, dangerous to public safety and welfare, or detrimental to neighboring properties or property values;

F. Any chattel stored in a residential yard or court in a manner that the item is not shielded totally or in part from view from a public right-of-way by a six foot (6') high solid fence, wall, gate or equivalent screen.

For the purposes of this Subsection:

"Chattel" means any tangible, movable, personal property whatsoever including, but not limited to, building materials, household furniture, appliances, or motor vehicle parts, but not including duly licensed operable vehicles or recreational vehicles, nor boats, camper shells or off-the-road vehicles mounted thereon.

"Court" means any open, unoccupied area, other than a yard on the same lot with a building or buildings, bounded on two (2) or more sides by such building or buildings.

"Recreational vehicle" means a vehicle for the conveyance and/or shelter of persons or goods for purposes of leisure-time activities; a motor home, travel trailer, van, truck camper, camping trailer, boat, or off-the-road vehicle. Recreational vehicles shall not include vehicles designed and intended for commercial use which are converted to a recreational use, such as airplanes, buses, moving vans or semitrailers, nor recreational vehicles used for economic gain, nor chattel.

"Vehicle" means a device by which any person or property may be propelled, moved, or drawn upon a highway or upon water, excepting a device moved exclusively by human power, or used exclusively upon stationary rails or tracks.

"Yard" means any open space, other than a court, adjacent to any lot line, unobstructed from the ground to the sky;

G. Any vehicle, recreational vehicle or boat parked or stored in a manner not permitted by the zoning regulations set forth in Title 21;

H. Any attractive nuisance dangerous to children in the form of abandoned or broken equipment, hazardous pools, ponds, excavations or neglected machinery;

I. Broken or discarded furniture and household equipment remaining in front yard areas and side yard areas of corner lots for unreasonable periods and causing damage or detriment to neighboring property;

J. Clothesline visible from public view including front yard areas, in side yard areas, and corner lots;

K. Trash and garbage cans permanently stored in front or side yards and visible from public streets;

L. Packing boxes and other debris stored in yards and visible from public streets for unreasonable periods and causing detriment to neighboring property;

M. Property maintained in such condition as to become so defective, unsightly, or in such condition of deterioration or disrepair that the same causes substantial depreciation of the property values of surrounding properties or is materially detrimental to properties and improvements;

N. Any wall, fence or hedge maintained in such condition of deterioration, unapproved materials or disrepair as to constitute a hazard to persons or property or to cause depreciation in the value of any adjacent or nearby property;

O. Any wrecked vehicles (including vehicles with noticeably dented or rusted body parts) or

fully or partially disassembled vehicles (including vehicles without hoods, fenders, body panels, headlights, trunk lids, wheels, windows or windshields) when parked overnight on a residential, commercial or industrial use site (except licensed vehicle impound yards or junkyards) and visible from the public right-of-way or residential district;

P. Any commercial or industrial use sites with uncleaned grease spots on paved surfaces, oil or grease stains on buildings, walls or fences, an accumulation of dirt, grime or litter, any paved areas maintained in a condition of deterioration or disrepair or any excessive accumulation of weeds;

Q. Any boat, vehicle, trailer, camper or parts thereof which is stored or parked on a lot containing an unoccupied or vacant building;

R. Any boat, vehicle, trailer, camper or parts thereof which is stored or parked on a vacant lot, when the lot is not improved to meet the zoning regulations for a residential, commercial or industrial storage or parking lot;

S. Any vacant building secured in a manner not fully complying with the provisions of Sections 8.76.015 or 8.76.017;

T. No commercial vehicle over seven feet (7'), six inches (6") high, including any load thereon, or exceeding a maximum weight of three (3) tons, shall be stored or parked on any residentially zoned lot within the City. During daylight hours, such commercial vehicles conducting business on residentially zoned lots may park for a reasonable time while any construction, reconstruction or repair work is in progress. (ORD-19-0032 §§ 3, 4, 2019; ORD-16-0028 § 2, 2016; Ord. C-7665 §§ 1, 2, 1999; Ord. C-7660 § 1, 1999; Ord. C-6345 § 1, 1987; Ord. C-6288 § 1, 1986; Ord. C-6192 § 1, 1985; Ord. C-6161 § 1, 1985; Ord. C-6099 §§ 2, 3, 1984; Ord. C-5995 § 9, 1983; Ord. C-5834 § 1, 1982; Ord. C-5354 § 1 (part), 1977; Ord. C-5225 § 1 (part), 1975; prior code § 4611.10)

8.76.015 Security screens—Appearance standards.

A. Purpose. The purpose of this Section is to reduce the negative visual impacts of unoccupied units and buildings in commercial and residential areas by establishing minimum appearance standards for measures taken to secure unoccupied units or buildings from unlawful entry. It is intended that such measures, to the extent possible, disguise the vacant occupancy status of the unit or building to avoid appearance of abandonment, which if allowed to exist, would adversely affect the desirability of a neighborhood and attract squatting, vandalism, and other crime.

B. Scope. The provisions of this Section apply to any vacant unit or building or group of vacant units or buildings.

C. Permitted materials. Steel screens, bars, or grilles and other materials approved by the Building Official in writing may be installed over any openings provided all of the following conditions are met:

1. The materials are resistant to, or protected against oxidation and discoloration (e.g., screens, bars or grilles shall be either painted, galvanized, plastic-coated, anodized, or cadmium-plated).

2. The color of the materials used shall be black or another color consistent with the aesthetic of the building or unit and approved by the Building Official in writing.

3. All screens, bars or grilles installed over bedroom windows shall be equipped with a quick-release mechanism approved by the Building Official in writing.

D. Exception. Plywood may be used temporarily, and in no case longer than 60 days, provided the plywood is painted in a color conforming to and consistent with the existing color of the vacant unit(s) or building(s) and approved by the Building Official in writing. Plywood shall be a minimum of 15/32 inches thick and secured by one-way or tamper-resistant screws or bolts. If the Plywood proves to be insufficient to prevent unauthorized entry to the building it shall immediately be replaced by the property owner with more durable protections.

E. Doors. Door and sliding-door openings shall be made operable with the use of hinges and must include locking devices or hardware sufficient to secure the opening from unauthorized access.

F. Exception. Nothing specified herein shall be construed to prevent emergency hazard abatement authorized pursuant to Section 18.20.380 by materials otherwise prohibited by these provisions.

G. Alternates. The Building Official may approve alternate methods of complying with this Section when such methods are found to be, in the opinion of the Building Official, equivalent to prescriptive requirements or comply with the spirit and purpose of the regulations. To be valid, the approval of alternate methods by the Building Official must be in writing. (ORD-26-0004 § 5, 2026; Ord. C-6161 § 2, 1985)

8.76.017 Reserved.

Editor's note—ORD-26-0004 § 29, adopted Feb. 3, 2026 repealed § 8.76.017 entitled "Security screens—Appearance standards (commercial properties)," which derived from: ORD-19-0032 § 5, 2019; and Ord. C-7050 § 1, 1992.

8.76.020 Abatement—Notice.

Whenever the Building Official, Health Officer, or such other City official as may be designated by the City Manager, determines that any building or premises within the City is being maintained in violation of the provisions of this Chapter, he shall give written notice thereof to the owner of record as shown on the last equalized assessment roll. Such notice may be served by mail, addressed to the owner at the last known address of the owner as shown on the last equalized assessment roll. The notice shall specify the condition or conditions to be corrected or remedied and shall specify a reasonable period within which this must be accomplished. The service of this notice is complete at the time such notice is deposited in a receptacle maintained by the United States Postal Service, with postage thereon fully prepaid. (Ord. C-5354 § 1 (part), 1977: Ord. C-5225 § 1 (part), 1975: prior code § 4611.11)

8.76.030 Abatement—Hearing—Notice—Form.

If the owner fails to comply with the notice of the appropriate City official to abate the subject nuisance within the time specified in the notice to abate, the City official shall apply to the Board of Examiners, Appeals and Condemnation for a hearing and a finding of a nuisance. Notice of such hearing shall be substantially in the following form:

NOTICE OF HEARING TO DETERMINE EXISTENCE OF PUBLIC NUISANCE AND TO ABATE IN WHOLE OR IN PART

NOTICE IS HEREBY GIVEN that on the ____ day of _____, 20____, at the hour of _____m., the Board of Examiners, Appeals and Condemnation of the City of Long Beach will hold a public hearing in the Council Chambers of the Long Beach City Hall, located at 411 West Ocean Boulevard, Long Beach, California, to ascertain whether certain premises situated in the City of Long Beach, State of California, known and designated as _____, constitute a public nuisance subject to abatement by the rehabilitation of such premises or by the repair or demolition of buildings or structures situated thereon. If said premises, in whole or part, are found to constitute a public nuisance as defined by Section 8.76.010 of the Long Beach Municipal Code, and if the same are not promptly abated by the owner, such nuisances may be abated by municipal authorities, and the costs of rehabilitation, repair or demolition plus incidental enforcement costs will be assessed upon such premises and such costs will constitute a lien upon such land until paid.

Said alleged violations consist of the following: _____.

Said methods of abatement available are: _____.

All persons having any objection to or interest in said matters are hereby notified to attend a meeting of the Board of Examiners, Appeal and Condemnation of the City of Long Beach to be held on the____ day of _____,

20____, at the hour of ____ m., when their testimony and evidence will be heard and given due consideration.

Dated this ___ day of _____, 20___.

_____

(City Official)

(ORD-19-0032 § 6, 2019; Ord. C-7098 § 7, 1993: Ord. C-5354 § 1 (part), 1977: Ord. C-5225 § 1 (part), 1975: prior code § 4611.12)

8.76.040 Abatement—Hearing—Notice—Service.

A. The City official, or such representative as may be designated by him, shall cause to be served upon the owner of each of the affected premises a copy of the notice of hearing, by certified mail, at his last known address as it appears on the last equalized assessment roll.

B. The notice of hearing shall be served, as aforesaid, at least ten (10) days before the time fixed for the hearing. Proof of service of the notice shall be made by declaration filed with the Board of Examiners, Appeals and Condemnation.

C. Service shall be completed at the time of the deposit of the notice in a receptacle maintained by the United States Postal Service, with postage thereon fully prepaid.

D. "Owner," as used in this Section, means any person so designated on the last equalized assessment roll and also any person having or claiming to have any legal or equitable interest in the premises, as disclosed by a preliminary title search.

E. The failure of any person to receive such notice shall not affect the validity of any proceedings hereunder. (Ord. C-5354 § 1 (part), 1977: Ord. C-5225 § 1 (part), 1975: prior code § 4611.13)

8.76.050 Abatement—Hearing—Procedure.

At the time stated in the notice, the Board shall hear and consider all relevant evidence, objections or protests, and shall receive testimony from owners, witnesses, City personnel and interested persons relative to the alleged public nuisance and to propose correction, repair or demolition of the premises. The hearing may be contained without further notice from time to time. (Ord. C-5354 § 1 (part), 1977: Ord. C-5225 § 1 (part), 1975: prior code § 4611.14)

8.76.060 Abatement—Hearing—Determination.

A. Upon conclusion of the hearing, the board shall determine whether the premises, or any part thereof, as maintained, constitutes a public nuisance as defined in this Chapter. If the Board finds that such public nuisance does exist, they shall determine how the nuisance is to be abated and shall establish a time within which correction, repair, demolition or removal shall take place; and in the event of the owner's failure to correct the

nuisance within the time prescribed, the City shall cause the nuisance to be abated and the cost incurred in behalf of the City to become a lien on the property, in accordance with Title 18 of this Code. A copy of the determination shall be served by mail upon the owner of each of the affected premises.

B. Service shall be complete at the time of the deposit of the report in a receptacle maintained by the United States Postal Service, with postage thereon fully prepaid. (Ord. C-5354 § 1 (part), 1977: Ord. C-5225 § 1 (part), 1975: prior code § 4611.15)

8.76.070 Abatement—Appeal—Contents.

Any owner may appeal to the City Council from the determination of the Board of Examiners, Appeals and Condemnation by filing with the City Clerk within ten (10) days from the date of service of such decision or report, a written appeal containing the following, along with a fee as prescribed by Councilmanic resolution:

A. A brief statement setting forth the legal interest of each of the appellants in the building or the land involved;

B. A statement in ordinary and concise language of the finding or action protested, together with any material facts supporting the contentions of the appellant;

C. The signatures of all parties named as appellants, and their official mailing addresses;

D. The verification, under penalty of perjury, of at least one (1) appellant as to the truth of the matters stated in the appeal. (Ord. C-5354 § 1 (part), 1977: Ord. C-5225 § 1 part), 1975: prior code 4611.16)

8.76.080 Abatement—Appeal—Hearing.

As soon as practicable after receiving the written appeal, the City Clerk shall set a date for hearing of the appeal by the City Council, which date shall be not less than ten (10) days, nor more than forty-five (45) days from the date the appeal was filed. Written notice of the time and place of the hearing shall be given by the City Clerk to each appellant at least ten (10) days prior to the date of the hearing by mailing a copy thereof, postage prepaid, addressed to the appellant at his address shown on the appeal. Continuances of the hearing, without further notice, may be granted for good cause by the City Council. (Ord. C-5354 § 1 (part), 1977: Ord. C-5225 § 1 (part), 1975: prior code § 4611.17)

8.76.090 Abatement—Appeal—Decision.

A. Upon the conclusion of the hearing on the appeal, the City Council shall either terminate the proceedings and overrule the findings of the Board, confirm the determination of the Board, or modify the determination, based upon evidence received at the hearing. If the Council takes any action other than to terminate the proceedings, it shall declare the premises to be a public nuisance shall order the abatement of the same within a specified time by having such premises, buildings or structures corrected, repaired, demolished or removed. The decision of the City Council shall be served on the appellant by the City Clerk and shall be final and conclusive.

B. No legal proceeding or action shall lie against the City nor against the Council, nor the Board of Examiners, Appeals and Condemnation, nor any member of either thereof, nor against any officer, agent or employee of the City, to review or enjoin the enforcement of its determination or orders made pursuant to this Chapter or to recover damages for carrying out such orders in a lawful and reasonable manner, unless such legal action is commenced within thirty (30) days after the decision of the Council. (Ord. C-5354 § 1 (part), 1977: Ord. C-5225 § 1 (part), 1975: prior code § 4611.18)

8.76.100 Abatement by City—Authorized.

If the nuisance is not completely abated by the owner as directed within the designated abatement period, then the City Manager, or such other City official as may be designated by him, is authorized and directed to cause the same to be abated by City forces or private contract, and the City Manager, or his designated agent, is expressly authorized to enter upon the premises for such purpose.

All expenses so incurred by the City in connection therewith, plus a ten percent (10%) charge for the City's administrative costs, shall be charged to and become an indebtedness of the owner of such structure or premises, as well as a lien upon the affected property, as elsewhere provided in this Chapter. (Ord. C-5354 § 1 (part), 1977: Ord. C-5225 § 1 (part), 1975: prior code § 4611.19)

8.76.101 Owner's responsibility for enforcement costs.

If the nuisance is not completely abated by the owner as directed within the time frame established by the City Manager, or his designated agent, or as said time frame may be modified on appeal to the Board of Examiners, Appeals and Condemnation or City Council, all incidental enforcement costs incurred by the City in connection therewith shall be charged to and become an indebtedness of the owner of such structure or premises, except as provided below, as well as a lien upon the affected property whether or not the work is performed later by the City, by the owner, or by others. "Incidental enforcement costs" include, but are not limited to, the actual expenses and costs of the City in investigating the nuisance, obtaining title information, preparing notices, and performing inspections. Incidental enforcement costs shall not be charged to, nor become an indebtedness of, a property owner who is head of a low-income household (defined to be a household earning less than eighty percent (80%) of the County median income). (Ord. C-7098 § 17, 1993)

8.76.110 Abatement by City—Notice.

If the nuisance is not completely abated by the owner within the designated abatement period, the City Manager or such other City official as may be designated by him shall serve notice on the owner of the affected premises by certified mail at his last known address as it appears on the last equalized assessment roll a notice of intent to abate nuisance which shall be substantially in the following form:

NOTICE OF INTENT TO ABATE NUISANCE

NOTICE IS HEREBY GIVEN that an inspection made of the premises or property known and designated as _____ was made on the _____ day of _____, 20____, and a determination made that the order to abate the nuisance at said premises or property by the Long Beach City Council on _____ had not been complied with. Abatement of said nuisance will be accomplished by either City forces or private contractor in accordance with the specifications attached hereto and costs of such abatement will constitute a lien upon said property until paid. Notice is hereby given that said abatement will be undertaken ten (10) days after the date of this notice, and you are herewith notified to remove from the area of your affected premises those articles you deem of value within said ten-day period of time. Articles removed from the premises in the accomplishment of said abatement will be held in storage for a period of thirty (30) days at (location)_____ and a claim for articles removed may be made within said thirty (30)-day period. Articles not claimed and removed from the storage location within said thirty-day period will be discarded or will be sold if determined to have value.

A statement of costs incurred in the abatement with charges to be assessed will be mailed to you after completion. (ORD-19-0032 § 7, 2019; Ord. C-5354 § 1 (part), 1977: Ord. C-5225 § 1 (part), 1975: prior code § 4611.20)

8.76.120 Abatement by City—Charges—Statement.

When any nuisance is abated by the City pursuant to this Chapter, or when an owner is responsible for incidental enforcement costs as provided by Section 8.76.101, the City Manager or such other City official as may be designated by him shall prepare a sworn statement showing the cost, including incidental expenses and incidental enforcement costs thereof. The City Manager or

such other City official as may be designated by him shall thereupon give notice of the amount of the charges in the same manner as provided in Section 8.76.040. "Incidental expenses" include, but are not limited to, the actual expenses and costs of the City in the preparation of notices, specification and contracts, and inspecting the work, and costs of printing and mailing required under this Chapter. (Ord. C-7098 § 8, 1993: C-5354 § 1 (part), 1977: Ord. C-5225 § 1 (part), 1975: prior code § 4611.21)

8.76.130 Abatement by City—Charges—Hearing.

A. Within thirty (30) days from the date of service of the notice of charges for abatement, the property owner, or any interested person, may demand a hearing before the Board of Examiners, Appeals and Condemnation as to the reasonableness of the charges. Such demand shall be in writing and filed with the Building Official. Such demand shall be presented by the Building Official to the Board of Examiners, Appeals and Condemnation at its next regular meeting. The Board of Examiners, Appeals and Condemnation shall thereupon set a date for hearing the protest which shall be not less than ten (10) nor more than forty-five (45) days thereafter. The Building Official shall give written notice of the hearing to the address furnished in the demand for hearing. At the time set for the hearing, the Board of Examiners, Appeals and Condemnation shall hear all evidence pertinent to the reasonableness of the charges and shall then either confirm or modify the charges. The decision of the Board of Examiners, Appeals and Condemnation thereon shall be final.

B. If the amount of the charges as determined by the Board of Examiners, Appeals and Condemnation has not been paid within sixty (60) days after the date of the hearing, the payment thereof shall thereupon become delinquent and such amount so determined shall thereafter bear interest at the rate of twelve percent (12%) until paid or until filed with the Tax Collector as provided in this Chapter. If no hearing is demanded as to the reasonableness of the charges, the payment thereafter shall become delinquent at the expiration of the time for filing of a demand for a hearing thereon. (Ord. C-7098 § 9, 1993: Ord. C-5354 § 1 (part), 1977: Ord. C-5225 § 1 (part), 1975: prior code § 4611.22)

8.76.140 Abatement by City—Charges—Certification to Tax Collector.

Within thirty (30) days thereafter and on July 1st of each year, the City Manager shall certify a list of all delinquent charges for nuisance abatement to the Tax Collector. Each parcel of property shall be described sufficiently to identify it in accordance with the records of the Tax Collector, and the amount of such charges, including such interest as shall have accrued after the delinquent date to July 1st of such year, shall be set forth opposite such description. (Ord. C-5354 § 1 (part), 1977: Ord. C-5255 § 1 (part), 1975: prior code § 4611.23 (a))

8.76.150 Abatement by City—Charges—Collection.

Upon receipt of such list the Tax Collector shall enter the charges shown thereon for each parcel of property upon the current tax roll and shall proceed to collect the charges in the same manner as municipal ad valorem taxes and penalties and interest for nonpayment thereafter shall attach as though such amounts were ad valorem taxes; provided, however, that no receipt for payment of ad valorem taxes appearing upon the tax roll as against a particular parcel shall be issued unless all such charges for nuisance abatement, and penalties thereon, entered upon that tax roll against the lot are first paid in full. (Ord. C-5354 § 1 (part), 1977: Ord. C-5225 § 1 (part), 1975: prior code § 4611.23 (b))

8.76.160 Abatement by City—Sale for delinquent taxes—Charges added to record.

Upon the sale of any lot to the City for nonpayment of taxes, all charges for nuisance abatement for the parcel appearing upon the tax roll, together with the penalties thereon, shall be added

to and become a part of the same delinquent tax record. (Ord. C-5354 § 1 (part), 1977: Ord. C-5225 § 1 (part), 1975: prior code § 4611.23 (c))

8.76.170 Abatement by City—Sale for delinquent taxes—Certificate of redemption.

No certificate of redemption from sale for delinquent taxes shall be issued until all charges for nuisance abatement, and penalties entered on the delinquent tax records against the property involved, first have been paid in full (Ord. C-5354 § 1 (part), 1977: Ord. C-5225 § 1 (part), 1975: prior code § 4611.23 (d))

8.76.180 Abatement by City—Error correction.

A. The City Manager may, prior to certifying any such unpaid charges to the Tax Collector, correct any errors with respect to such taxes appearing upon his records.

B. After such taxes have been certified to the Tax Collector, the Council, by order entered on its minutes, may cancel any charges for nuisance abatement, or penalty, or any portion of either thereof, appearing on the tax records, which, because of error, is charged against the wrong property, or which has been paid but such payment has not been recorded upon the tax records, or which is based upon a clerical error in such records, or which was charged against property acquired subsequent to the lien date by the United States, by the State, or any City, or any school district or other political subdivision, and because of this public ownership not subject to sale for delinquent assessments. (Ord. C-5354 § 1 (part), 1977: Ord. C-5225 § 1 (part), 1975: prior code § 4611.23 (e))

8.76.190 Abatement by City—Charges—Refund.

Any charge for nuisance abatement or penalty, or portion of either thereof, which is paid as the result of an erroneous assessment upon the wrong property, or which is paid more than once, or which is based upon a clerical error appearing in the tax records, may be refunded by the Council to the person entitled thereto; provided, however, that such refunds shall only be made upon the written application of the person entitled thereto, which must be filed with the City Clerk not later than one (1) year after the date the erroneous payment was made. (Ord. C-5354 § 1 (part), 1977: Ord. C-5225 § 1 (part), 1975: prior code § 4611.23 (f))

8.76.200 Alternative remedies.

It is the intent of the City Council that the provisions and procedures set forth in this Chapter shall not expressly or by implication repeal or supersede any other provisions or procedures of the Long Beach Municipal Code or any other applicable law on the same or related subject matters. This Chapter shall supplement existing procedures and will provide an alternative, nonexclusive procedure for the abatement of a nuisance. Nothing in this Chapter shall preclude or prohibit the City from resorting to any appropriate legal remedy, whether civil or criminal, in the abatement of any nuisance, including any nuisance designated in this Chapter; and when such legal remedy is utilized, the administrative hearing and appeal procedures provided in this Chapter to determine the existence of a nuisance shall not be applicable. (Ord. C-5354 § 1 (part), 1977: Ord. C-5225 § 1 (part), 1975: prior code § 4611.24)

8.76.205 Criminal prosecution.

Pursuant to Section 1.32.010 of this Code, any violation of the provisions of this Chapter 8.76 is a misdemeanor, and the notice, hearing, appeal and other administrative procedures contained in this Chapter 8.76 shall not be a condition precedent to any criminal prosecutions. (Ord. C-6789 § 1, 1990)

8.76.210 Penalty for violation.

A. The owner of any building, premises or vehicle who maintains any public nuisance thereon, as defined in this Chapter, or who violates any order of abatement issued by the Board of Examiners, Appeals and Condemnation or the City

Council is guilty of a misdemeanor; provided that any violation of Subsections 8.76.010.G, Q, R, and T shall be deemed an infraction.

B. Any occupant or lessee in possession of any such building or premises who fails to vacate the building or premises in accordance with an order of abatement provided in this Chapter is guilty of a misdemeanor.

C. Any person who removes any notice or order posted as required in this Chapter is guilty of a misdemeanor.

D. No person shall obstruct, impede or interfere with any representative of a City department or the Board of Examiners, Appeals and Condemnation, or with any person who owns or holds any estate or interest in a building or premises which has been ordered to be vacated, repaired, rehabilitated, or demolished, whenever any such representative of the City or the Board of Examiners, Appeals and Condemnation, or any person having any interest or estate in such building or premises, is engaged, pursuant to the provisions of this Chapter, in enforcing any such order of abatement.

E. Those employees of the Department of Development Services designated by the Director of Development Services are authorized and may issue notices of violation of Subsections 8.76.010.G, Q, R or T pursuant to the applicable provisions of Section 41103 and other sections of the Vehicle Code relating to the standing or parking of a vehicle. If the notice of violation cannot be attached to the vehicle or other personal property, it may be posted on the front door of the involved premises.

Nothing in this Section is intended to operate to make these employees peace officers. Further, nothing in this Section is intended to or shall operate to change or shall have the effect of changing the status of the employees authorized to act pursuant to this Section from public or miscellaneous employees to individual peace officers or safety members or classes of peace officers or safety members. (ORD-16-0028 § 3, 2016; Ord. C-6288 § 2, 1986; Ord. C-6099 §§ 1 and 4, 1984; Ord. C-5489 § 1, 1979; Ord. C-5354 § 1 (part), 1977: Ord. C-5225 § 1 (part), 1975: prior code § 4611.25)

8.76.215 Civil penalty—City abatement more than once.

If the Building Official finds that the City had previously abated a building or premises on the same property after notice to the same owner, he shall access a civil penalty based on the following schedule abatement again occurred by the City:

Civil penalty: for previous abatement by the City once within the preceding five (5) years: fifty percent (50%) of the City's administrative cost for abatement including processing fees; for previous abatement by the City two (2) or more times within the preceding five (5) years: one hundred percent (100%) of the City's administrative costs for abatement including processing fees.

The City will give notice of this civil penalty to all property owners when abatement procedures are instituted against their properties pursuant to this Chapter.

The imposition of this civil penalty may be appealed to the Board of Examiners, Appeals and Condemnation in the same manner as provided in Section 8.56.120.

The civil penalty constitutes a debt of the person charged to the City and is collectable by the City as an obligation or liability created by statute. (Ord. C-7050 § 3, 1992)

CHAPTER 8.77 URBAN AGRICULTURE INCENTIVE ZONE (UAIZ) ACT

8.77.010 Purpose.

The purpose of this Chapter is to implement the "City of Long Beach Urban Agriculture Incentive Zone (UAIZ) Program", which promotes urban agriculture and increases access to healthy food in accordance with California Government Code Sections 51040 et seq. and County of Los Angeles Planning and Zoning Code (County Planning Code) Sections 22.52.3400 et seq. Under the UAIZ Program a property owner may voluntarily enter into an agreement with the City to use vacant or unimproved property for small-scale agricultural purposes (UAIZ Contract), and be subject to a reduced property tax assessment under

California Revenue and Taxation Code Section 422.7 during the term of the agreement. (ORD-17-0024 § 6, 2017)

8.77.020 Eligibility criteria.

A. Eligibility for the City's UAIZ Program shall be assessed by the Designated Administrative Agency (DAA), defined in Section 8.77.030, based on the following criteria:

1. Requirements set forth in California Government Code Sections 51040 et seq.;

2. Requirements set forth in the County Planning Code Sections 22.52.3400 et seq.;

3. Consistency with the definition of Urban Agriculture Incentive Zone and permitted urban agricultural uses as set forth in Long Beach Municipal Code Chapter 21.15 and Sections 21.31.110, 21.32.110, 21.33.060 and 21.52.260;

4. The property must not be located, wholly or partially, on a site or facility listed on the Department of Toxic Substance Control's Envirostar Database; and

5. Any such other requirements reasonably imposed by the City or the DAA. (ORD-17-0024 § 6, 2017)

8.77.030 Administration.

The DAA is the City department, board or office that has administrative responsibility under this Chapter. For purposes of this Chapter, the DAA is the City's Department of Development Services.

A. The DAA shall promulgate rules and regulations for administration and implementation of this Chapter, including, but not limited to, developing the application form and contracting requirements and procedures.

B. The DAA shall coordinate with any relevant agencies to monitor compliance with this Chapter, including investigation of alleged violations.

C. The DAA shall have the authority to terminate UAIZ Contracts subject to the provisions of the UAIZ Contract, this Chapter, and the DAA's rules and regulations governing this Chapter. (ORD-17-0024 § 6, 2017)

8.77.040 Required provisions of Urban Agriculture Incentive Contract.

A. UAIZ Contracts shall include:

1. Those provisions required by Government Code Sections 51040 et seq.;

2. Those provisions required by the County Planning Code Sections 22.52.3400 et seq.;

3. Those provisions required by the DAA, and any subsequently adopted DAA rules and regulations; and

4. A provision requiring the property owner to furnish the DAA with all information that the DAA requires to determine whether the property is eligible for the UAIZ Program. (ORD-17-0024 § 6, 2017)

8.77.050 Procedures for application and execution of an Urban Agriculture Incentive Zone Contract.

A. A property owner who is interested in participating in the City's UAIZ Program must perform the following steps, as required by the DAA:

1. The property owner, or the property owner's agent as approved by the DAA, must file an application form with the DAA to enter into a UAIZ Contract;

2. The property owner must use the application form required by the DAA and pay fees established by the DAA, if any;

3. The property owner must execute and notarize the UAIZ Contract, and submit it to the DAA for execution by the City. The UAIZ Contract must be in a form approved and provided by the City, which includes the required provisions as set forth in Section 8.77.040.

B. The DAA's responsibilities include:

1. The DAA shall determine eligibility of the property owner for a UAIZ Contract pursuant to this Chapter after the property owner submits a complete application to the DAA;

2. If the property owner meets the City's eligibility criteria, the DAA shall take the steps necessary to verify that the Los Angeles County Office of the Assessor has determined that the unrealized ad valorem property tax revenue does not exceed the maximum allocation, articulated in

the County Planning Code Section 22.52.3430, and that the Los Angeles County Department of the Treasurer and Tax Collector has verified that the subject property is current on all tax assessments;

3. If the DAA determines that a property owner has received all of the required approvals for a UAIZ Contract pursuant to this Chapter, the DAA shall notify the property owner and provide the property owner a form of contract that has been approved by City for use in the UAIZ Program;

4. Once the DAA receives an original, notarized UAIZ Contract from the property owner, in accordance with Subsection 8.77.050.A.3, the DAA shall countersign the UAIZ Contract and send the original copy of the fully executed UAIZ Contract to the property owner for recordation pursuant to the recordation process set forth in Section 8.77.060; and

5. The DAA shall maintain a sample of the City's form UAIZ Contract containing all of the provisions required under this Chapter. (ORD-17-0024 § 6, 2017)

8.77.060 Recordation of the executed Urban Agriculture Incentive Zone Contract.

The following steps must be completed as a part of the UAIZ Contract recordation process:

A. The property owner must record the UAIZ Contract with the Los Angeles County Registrar-Recorder/County Clerk;

B. The property owner must return one certified copy of the recorded UAIZ Contract to the DAA;

C. The DAA shall provide a certified copy of the recorded UAIZ Contract to the Los Angeles County Office of the Assessor, in a form approved by the Assessor, and maintain a certified copy of the recorded UAIZ Contract in the City's files, in a form approved by the City;

D. The DAA shall notify the property owner after the UAIZ Contract has been delivered to the Assessor's Office;

E. Commencement date of the UAIZ Contract may be subject to limitations imposed by the County and the DAA; and

F. The term of an approved UAIZ Contract shall commence on the first day of January following recordation of the UAIZ Contract. (ORD-17-0024 § 6, 2017)

8.77.070 Enforcement.

A. Among other provisions, UAIZ Contracts must provide that a violation of this Chapter shall constitute a material breach thereof and entitle the City to terminate the UAIZ Contract and otherwise pursue legal remedies that may be available.

B. Violations of this Chapter may be reported to the DAA. (ORD-17-0024 § 6, 2017)

8.77.080 Severability.

If any section, subsection, sentence, clause or phrase of this article is for any reason held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this ordinance. The City Council hereby declares that it would have adopted this Chapter, and each and every subsection, sentence, clause and phrase thereof not declared invalid or unconstitutional, without regard to whether any portion of the ordinance would be subsequently declared invalid or unconstitutional. (ORD-17-0024 § 6, 2017)

CHAPTER 8.80 NOISE

8.80.010 Policy.

A. In order to control unnecessary, excessive and annoying noise and vibration in the City, it is declared to be the policy of the City to prohibit such noise and vibration generated from or by all sources as specified in this Chapter. It shall be the policy of the City to maintain quiet in those areas which exhibit low noise levels and to implement programs aimed at reducing noise in those areas within the City where noise levels are above acceptable values.

B. It is determined that certain noise levels and vibrations are detrimental to the public health, welfare and safety, and are contrary to the public interest. Therefore, the City Council does ordain and declare that creating, maintaining, causing or allowing to be created, caused or maintained, any noise or vibration in a manner prohibited by or not in conformity with the provisions of this Chapter is a public nuisance and shall be punishable as such.

C. The City Council in adopting this Chapter is aware of the areas of noise control which are preempted by other jurisdictions. Enforcement of these regulations is understood by the City Council to be restricted, in addition to other limitations, by the following:

1. It is not the intent of this Chapter to control aircraft noise at the Long Beach Airport. Federal law controls noise levels of aircraft in flight; and where federal preemption does not apply to aircraft on the ground, the appropriate provisions of the California Noise Law (Title 4, California Administrative Code, Subchapter 6) would be applicable to deal with this subject matter.

2. Local noise control of motor vehicles or motorboats operating on public rights-of-way is preempted by State or federal laws and regulations.

3. Noise in occupational environments is controlled by the California Department of Industrial Relations, whose Division of Industrial Safety enforces the 1973 California Occupational Safety and Health Act (CALOSHA). (Ord. C-5371 § 1 (part), 1977: prior code § 4430)

8.80.020 Definitions.

All terminology used in this Chapter, if not defined in this Section, shall have the same meaning as defined by applicable publications of the American National Standards Institute (ANSI), or its successor body.

1. "A-weighted sound level" means the sound pressure level in decibels as measured on a sound level meter using the A-weighting network. The level so read is designated dB(A) or dBA.

2. "Agricultural property" means a parcel of real property which is not developed for any use other than agricultural purposes. Its size shall be construed to be a minimum of ten (10) contiguous acres.

3. "Ambient noise level" means the composite of noise from all sources near and far. In this context, the ambient noise level constitutes the normal or existing level of environmental noise at a given location.

4. "Commercial area" means any area occupied by businesses which sell, rent, trade, or store goods, or which provide a service.

5. "Commercial purpose" means the use, operation or maintenance of any sound amplifying equipment for the purpose of advertising any business, goods, or services, or for the purpose of attracting the attention of the public, or soliciting patronage of customers to any performance, show, entertainment, exhibition, or event, or for the purpose of demonstrating such sound equipment.

6. "Construction" means any site preparation, assembly, erection, substantial repair, alteration, or similar action, but excluding demolition.

7. "Cumulative period" means an additive period of time composed of individual time segments which may be continuous or interrupted.

8. "Decibel (dB)" means a unit for measuring the amplitude of a sound, equal to twenty (20) times the logarithm to the base 10 of the ratio of the pressure of the sound measured to the reference pressure, which is twenty (20) micropascals (twenty (20) micronewtons per square meter).

9. "Demolition" means any dismantling, intentional destruction or removal of structures, utilities, public or private right-of-way surfaces or similar property.

10. "Emergency" means any occurrence or set of circumstances involving actual or imminent physical trauma or property damage which demands immediate action.

11. "Emergency work" means any work performed for the purpose of preventing or alleviating the physical trauma or property damage threatened or caused by an emergency.

12. "Fixed noise source" means a stationary device which creates sound while fixed or motionless, including, but not limited to, residential, agricultural, industrial, and commercial machinery and equipment, pumps, fans, compressors, air conditioners, and refrigeration equipment.

13. "Gross vehicle weight rating (GVWR)" means the value specified by the manufacturer as the recommended maximum loaded weight of a single motor vehicle. In cases where trailers and tractors are separable, the gross combination weight rating, which is the value specified by the manufacturer as the recommended maximum loaded weight of the combination vehicle shall be used.

14. "Impulsive sound" means sound of short duration, usually less than one (1) second, with an abrupt onset and rapid decay. Examples of sources of impulsive sound include explosions, drop forge impacts, and the discharge of firearms.

15. "Industrial area" means any area occupied by land uses whose primary operation involves manufacturing, assembling, processing, or otherwise treating raw materials, semifinished products, or finished products, for packaging and distribution to either wholesale or retail markets.

16. "Intrusive noise" means that noise which intrudes over and above the existing ambient noise at a given location. The relative intrusiveness of a sound depends upon its amplitude, duration, frequency and time of occurrence, and tonal or informational content as well as the prevailing ambient noise level.

17. "Licensed" means the issuance of a formal license or a permit by a City authority; or, where no permits or licenses are issued, the sanctioning of the activity by the City as noted in the public record.

18. "Mobile noise source" means any noise source other than a fixed noise source.

19. "Motor carrier vehicle engaged in interstate commerce" means any vehicle for which regulations apply pursuant to Section 18 of the Federal Noise Control Act of 1972 (P. L. 92-574), as amended, pertaining to motor carriers engaged in interstate commerce.

20. "Motor vehicle" includes any and all self-propelled vehicles as defined in the California Motor Vehicle Code, including all on-highway type motor vehicles subject to registration under said code, and all off-highway type motor vehicles subject to identification under said code.

21. "Motorboat" means any vessel which operates on water and which is propelled by a motor, including, but not limited to, boats, barges, amphibious craft, waterski-towing devices and hovercrafts.

22. "Muffler or sound dissipative device" means a device for abating the sound of escaping gases of an internal combustion engine.

23. "Noise" means any sound which annoys or disturbs humans or which causes or tends to cause an adverse psychological or physiological effect on humans.

24. "Noise control office" means the City agency designated by the City Manager having the lead responsibility and authority to enforce this Chapter and to grant variances.

25. "Noise control officer" means the City official appointed by the City Manager to direct the noise control office.

26. "Noise disturbance" means any sound which (a) endangers or injures the safety or health of humans or animals, or (b) annoys or disturbs a reasonable person of normal sensitivities, or (c) endangers or injures personal or real property.

27. "Noise sensitive zone" means any area designated pursuant to Section 8.80.030 for the purpose of insuring exceptional quiet.

28. "Noise source" means a disturbance-causing operation which originates from a single unit or noise generating mechanism which operates simultaneously. Example of a single noise source is the combination of motor, pump, and compressor; oil drilling rig; or a power plant with several boilers.

29. "Noise zone" means defined areas or regions of a generally consistent land use community wherein the ambient noise levels are generally similar (within a range of five (5) decibels). Typically, most sites within any given noise zone will be of comparable proximity to major noise sources.

30. "Noncommercial purpose" means the use, operation or maintenance of any sound equipment for other than a commercial purpose, including, but not limited to, philanthropic, political, patriotic and charitable purposes.

31. "Person" means any individual, association, partnership or corporation, and includes any officer, employee, department, agency or instrumentality of a State or any political subdivision of a State.

32. "Powered model vehicle" means any self-propelled airborne, waterborne, or land-borne plane, vessel or vehicle which is not designed to carry persons, including, but not limited to, any model airplane, boat, car or rocket.

33. "Public right-of-way" means any street, avenue, boulevard, highway, sidewalk or alley or similar place which is owned or controlled by a governmental entity.

34. "Public space" means any real property or structures thereon which are owned or controlled by a governmental entity.

35. "Pure tone" means any sound which can be distinctly heard as a single pitch or a set of single pitches. For the purposes of this Chapter, a pure tone shall exist if the one-third (1/3) octave band sound pressure level in the band with the tone exceeds the arithmetic average of the sound pressure levels of the two (2) contiguous one-third (1/3) octave bands by five (5) decibels for center frequencies of five hundred (500) hertz and above and by eight (8) decibels for center frequencies between one hundred sixty (160) and four hundred (400) hertz and by fifteen (15) decibels for center frequencies less than or equal to one hundred twenty-five (125) hertz.

36. "Real property boundary" means an imaginary line along the ground surface, and its vertical extension, which separates the real property owned by one (1) person from that owned by another person, but not including intra-building real property divisions.

37. "Residential area" means any area wherein the dominant land use is devoted to maintenance, preservation, or propagation of residential dwelling units.

38. "RMS sound pressure" means the square root of the time averaged square of the sound pressure, denoted $P_{rms.}$

39. "Sound" means an oscillation in pressure, particle displacement, particle velocity or other

physical parameter, in a medium with internal forces that causes compression and rarefaction of that medium. The description of sound may include any characteristic of such sound, including duration, intensity and frequency.

40. "Sound amplifying equipment" means any machine or device for the amplification of the human voice, or music, or any other sound, excluding standard automobiles when used and heard only by the occupants of the vehicle in which the device is installed and, as used in this Chapter, warning devices on authorized emergency vehicles or horns or other warning devices on any vehicle used only for traffic safety purposes.

41. "Sound level" means the weighted sound pressure level obtained by the use of a sound level meter and frequency weighting network, such as A, B or C, as specified in American National Standards Institute specifications for sound level meters (ANSI S1.4-l971 or the latest approved revision thereof). If the frequency weighting employed is not indicated, the A-weighting shall apply.

42. "Sound level meter" means an instrument, including a microphone, an amplifier, an output meter, and frequency weighting networks for the measurement of sound levels, which satisfies the requirements pertinent for type S2A meters in American National Standards Institute specifications for sound level meters, S1.4-1971, or the most recent revision thereof.

43. "Sound pressure" means the instantaneous difference between the actual pressure and the average or barometric pressure at a given point in space, as produced by sound energy.

44. "Sound pressure level" means twenty (20) times the logarithm to the base ten of the ratio of the RMS sound pressure to the reference pressure of twenty (20) micropascals (20×10^6 N/M^2). The sound pressure level is denoted L_p or SPL and is expressed in decibels.

45. "Sound truck" means any motor vehicle or any other vehicle, regardless of motive power, whether in motion or stationary, having mounted thereon, or attached thereto, any sound amplifying equipment.

46. "Vibration" means mechanical motion of the earth or ground, building, or other type of structure, induced by the operation of any mechanical device or equipment located upon or affixed thereto. For purposes of this Chapter, the magnitude of the vibration shall be stated as the acceleration in "g" units (1 g is equal to 32.2 ft/sec^2, 9.3 1 meters/sec^2).

47. "Weekday" means any day, Monday through Friday, which is not a federal holiday. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.1)

8.80.030 Administration and enforcement.

The noise program established by this Chapter shall be administered by the noise control office as designated by the City Manager. An official within the noise control office shall be appointed as the Noise Control Officer and shall be a person with sufficient knowledge of environmental acoustics to enforce noise regulations. All departments with noise regulation responsibilities may, based on circumstance and need, carry out the duties of the Noise Control Officer to help ensure that noise complaints from the public are timely and adequately addressed. This includes but is not limited to taking noise measurements and acting as a case manager, upon receiving a noise complaint; coordinating with the Noise Control Officer and relevant departments as appropriate based on the circumstance; and conducting other actions necessary to facilitate resolution of the noise complaint. Further, the City is committed to annually reviewing the provisions of this ordinance. (ORD-23-0027 § 1, 2023; Ord. C-5371 § 1 (part), 1977: prior code § 4430.2(a))

8.80.040 Noise control office—Powers.

In order to implement and enforce this Chapter and for the general purpose of noise abatement and control, the noise control office shall have, in addition to any other authority vested in it, the power to:

A. Studies. Conduct, or cause to be conducted, studies, research, and monitoring related to noise, including joint cooperative investigation with public or private agencies, and make application for and accept grants;

B. Education.

1. Conduct programs of public education regarding:

a. The cause and effect of noise and general methods of abatement and control of noise, and

b. The actions prohibited by this Chapter and the procedures for reporting violations, and

2. Encourage the participation of public interest groups in related public information efforts,

3. Provide for training of field inspectors and other technical personnel concerned with noise abatement (in conformance with standards for technical qualifications as established by the State Office of Noise Control).

C. Coordination and Cooperation.

1. Coordinate the noise control activities of all municipal departments,

2. Cooperate where practicable with all appropriate State and federal agencies,

3. Cooperate or combine where practicable with appropriate County and municipal agencies,

4. Advise on the availability of low noise emission products for replacement or retrofit of existing or planned City owned or operated equipment,

5. Enter into contract with the approval of the City Manager for the provision of technical and enforcement services;

D. Actions of Other Departments. Request any other department or agency responsible for a proposed or final standard, regulation or similar action to consult on the advisability of revising the action, if there is reason to believe that the action is not consistent with this Chapter;

E. Public and Private Projects. On all public and private projects which are likely to cause sound in violation of this Chapter and which are subject to mandatory review or approval by other departments or agencies, or which under the environmental review process are judged to be likely to violate these regulations:

1. Review to determine compliance with the intent and provisions of this Chapter,

2. Recommend sound analysis which identify existing and projected noise sources and associated sound levels,

3. Recommend usage of adequate measures to avoid violation of any provision of this Chapter;

F. Inspections. Upon presentation of proper credentials, enter and/or inspect any private property, place, report, or records at any time when granted permission by the owner, or by some other person with apparent authority to act for the owner. When permission is refused or cannot be obtained, a search or inspection warrant may be obtained from a court of competent jurisdiction upon showing of probable cause to believe that a violation of this Chapter may exist. Such inspection may include administration of any necessary tests;

G. Product Performance Standard Recommendations. Develop and recommend (to the City Council or other City agency) provision regulating the use and operation of any product, including the description of maximum sound emission levels of such product, but not in such a manner as to conflict with federal or State new product regulations;

H. Noise Sensitive Zone Recommendation and Enforcement. Prepare recommendations to be approved by the City Council, for the designation of noise sensitive zones which contain noise sensitive activities and to enforce the provisions of Sections 8.80.150 through 8.80.180 on City Council designated noise sensitive zones;

I. Noise Zone Definition. Prepare recommendations, based upon noise survey data and analytical studies, to be approved by the City Council, for the designation of zones of similar ambient environmental noise within regions of generally consistent land use. These zones shall be identified in terms of their day and nighttime ambient noise levels by the classifications given in Section 8.80.160, Table A;

J. Zoning Changes. Prior to the approval of any zoning change:

1. Review the noise impact of the zoning change by identifying existing and projected noise sources and the associated sound levels,

2. Require usage of adequate measures on noise sources identified in subdivision 1 of this

subsection which will be in violation of any provision of this Chapter. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.2 (b))

8.80.050 Noise Control Officer—Duties.

In order to effectively implement and enforce this Chapter, the Noise Control Officer shall, within a reasonable time:

A. Investigate and Pursue Violations. Investigate and pursue possible violations of this Chapter;

B. Delegation of Authority. Delegate functions, where appropriate under this Chapter, to personnel within the noise control office and to other departments, subject to the approval of the City Manager;

C. Community Noise Element.

1. Assist in the preparation or revision thereof of the City noise element of the general plan as required by Government Code Section 65302 (g), following guidelines set forth by the State Office of Noise Control,

2. Assist in or review the total transportation planning of the City, including planning for new roads and highways, bus routes, airports, and other systems for public transportation, to insure that proper consideration is taken with regard to the impact of sound levels and that the policies set forth in the noise element are adhered to,

3. Provide ongoing assistance to local agencies in determining possible mitigating measures for current or future noise problems;

D. Airport Noise Exposure. Assist the department of aeronautics in developing a plan for noise compatible land use in the vicinity of the Long Beach Airport and maintain consistency with the provisions and policies of the noise element of the general plan;

E. State and Federal Laws and Regulations.

1. Prepare and publish with the approval of the City Council a list of those products manufactured to meet specified noise emission limits under federal, State or community law for which tampering enforcement will be conducted, and

2. Make recommendations for modification or amendments to this Chapter to insure consistency with all State and federal laws and regulations;

F. Administer Grants, Funds and Gifts. Administer noise program grants, funds and gifts from public and private sources, including the State and federal governments;

G. Monitoring Responsibilities. Notwithstanding the preemption by federal and State agencies of the enforcement powers over certain activities, such as those at the Long Beach Airport and at the Long Beach Marine Stadium, the Noise Control Officer shall monitor noise generated by such preempted activities and report any violations of State or federal regulations to the appropriate enforcement agencies and to the City Council. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.2 (c))

8.80.060 City departments—Policy conformance.

All departments shall, to the fullest extent consistent with their authorities under other ordinances administered by them, carry out their programs in such a manner as to further the policies stated in Section 8.80.010. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.3 (a))

8.80.070 City departments—Cooperation.

All departments shall cooperate with the noise control office to the fullest extent in enforcing the noise regulations of this Chapter. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.3 (b))

8.80.080 City departments—Legal compliance.

All departments engaged in any activities which result or may result in the emission of noise, shall comply with federal and State laws and regulations, as well as the provisions of this Chapter, respecting the control and abatement of noise to the same extent that any person is subject to such laws and regulations. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.3 (c))

8.80.090 City departments—Project approval.

Each department whose duty it is to review and approve new projects or changes to existing projects that result, or may result, in the emission of noise shall consult with the noise control office prior to any such approval. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.3 (d))

8.80.100 City departments—Review of actions.

If at any time the Noise Control Officer has reason to believe that a standard, regulation, or action or proposed standard, regulation or action of any department respecting noise does not conform to the intent of Section 8.80.010, he may request such department to review and report to him on the advisability of revising such standard or regulation to conform. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.3 (e))

8.80.110 City departments—Contract compliance.

Any written agreement, purchase order, or instrument whereby the City is committed to the expenditure of funds in return for work, labor, services, supplies, equipment, materials, or any combination of the foregoing, shall not be entered into unless such agreement, purchase order, or instrument contains provisions requiring that any equipment or activities which are subject to the provisions of this Chapter will be operated, constructed, conducted, or manufactured without causing violation of this Chapter. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.3 (f))

8.80.120 City departments—Low noise emission product use.

Any product which has been certified by the Administrator of the United States Environmental Protection Agency pursuant to Section 15 of the Noise Control Act of 1972 as a low noise emission product and which is determined to be suitable for use as a substitute shall be used in preference to any other product where economically feasible. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.3 (g))

8.80.130 Disturbing noises prohibited.

A. Notwithstanding any other provision of this Chapter, and in addition thereto, it is unlawful for any person to willfully make or continue, or cause to be made or continued, a loud, unnecessary or unusual noise which disturbs the peace and quiet of any neighborhood or which causes any discomfort or annoyance to any reasonable person of normal sensitiveness residing in the area.

B. The standards which shall be considered in determining whether a violation of the provisions of this Section exist shall include, but not be limited to the following:

1. The sound level of the objectionable noise;

2. The sound level of the ambient noise;

3. The proximity of the noise to residential sleeping facilities;

4. The nature and zoning of the area within which the noise emanates;

5. The density of the inhabitation of the area within which the noise emanates;

6. The time of day or night the noise occurs;

7. The duration of the noise and its tonal, informational or musical content;

8. Whether the noise is continuous, recurrent, or intermittent;

9. Whether the noise is produced by a commercial or noncommercial activity. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.4)

8.80.140 Noise measurement procedure.

The measurement procedure presented in this Section assumes that personnel performing the noise measurements have been trained in the use of the instruments and in interpretation of measured data. Upon receipt of a complaint from a citizen, the Noise Control Officer, or his agent, equipped with sound level measurement equipment satisfying the requirements specified in Section 8.80.020, shall investigate the complaint. The investigation shall consist of a measurement and the gathering of data to adequately define the

noise problem as specified in the California Office of Noise Control Model Enforcement Manual, and shall include the following:

A. Nonacoustic Data.

1. Type of noise source;

2. Location of noise source relative to complainant's property;

3. Time period during which noise source is considered by complainant to be intrusive;

4. Total duration of noise produced by noise source;

5. Date and time of noise measurement survey.

B. Procedure. Utilizing the A weighting scale of the sound level meter and the slow meter response, the noise level shall be measured at a position or positions along the complainant's property line closest to the noise source or at the location along the boundary line where the noise level is at a maximum. In general, the microphone shall be located five feet (5') above the ground; ten feet (10') or more from the nearest reflective surface, where possible. However, in those cases where another elevation is deemed appropriate, the latter shall be utilized. If the noise complaint is related to interior noise levels, interior noise measurements shall be made at a point at least four feet (4') from the wall, ceiling or floor nearest the noise source with windows in the normal seasonal configuration. Calibration of the instrument being used shall be performed immediately prior to and following the recording of any noise data utilizing the acoustic calibrator. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.5)

8.80.150 Exterior noise limits—Sound levels by receiving land use district.

A. The noise standards for the various land use districts identified by the noise control office as presented in Table A in Section 8.80.160 shall, unless otherwise specifically indicated, apply to all such property within a designated district.

B. No person shall operate or cause to be operated any source of sound at any location within the incorporated limits of the City or allow the creation of any noise on property owned, leased, occupied, or otherwise controlled by such person, which causes the noise level when measured from any other property, either incorporated or unincorporated, to exceed:

1. The noise standard for that land use district as specified in Table A in Section 8.80.160 for a cumulative period of more than thirty (30) minutes in any hour; or

2. The noise standard plus five (5) decibels for a cumulative period of more than fifteen (15) minutes in any hour; or

3. The noise standard plus ten (10) decibels for a cumulative period of more than five (5) minutes in any hour; or

4. The noise standard plus fifteen (15) decibels for a cumulative period of more than one (1) minute in any hour; or

5. The noise standard plus twenty (20) decibels or the maximum measured ambient, for any period of time.

C. If the measured ambient level exceeds that permissible within any of the first four (4) noise limit categories in Subsection B of this Section, the allowable noise exposure standard shall be increased in five (5) decibels increments in each category as appropriate to encompass or reflect the ambient noise level. In the event the ambient noise level exceeds the fifth noise limit category in Subsection B of this Section, the maximum allowable noise level under said category shall be increased to reflect the maximum ambient noise level.

D. If the measurement location is on a boundary between two (2) different districts, the noise level limit applicable shall be the arithmetic mean of the two (2) districts.

E. If possible, the ambient noise shall be measured at the same location along the property line utilized in Subsection B of this Section, with the alleged offending noise source inoperative. If for any reason the alleged offending noise source cannot be shut down, then the ambient noise must be estimated by performing a measurement in the same general area of the source but at a sufficient distance such that the offending noise from the source is inaudible. If the difference between the

noise levels with noise source operating and not operating is six (6) decibels or greater, then the noise measurement of the alleged source can be considered valid with a small correction applied to account for the contribution of the ambient noise. The correction is to be applied in accordance with data shown in Table B in Section 8.80.160. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.6 (a))

8.80.160 Exterior noise limits—Correction for character of sound.

In the event that alleged offensive noise contains a steady audible tone such as a whine, screech, or hum, or is a repetitive noise such as hammering or riveting or contains music or speech conveying informational content, the standard limits set forth in Table A shall be reduced by five (5) decibels.

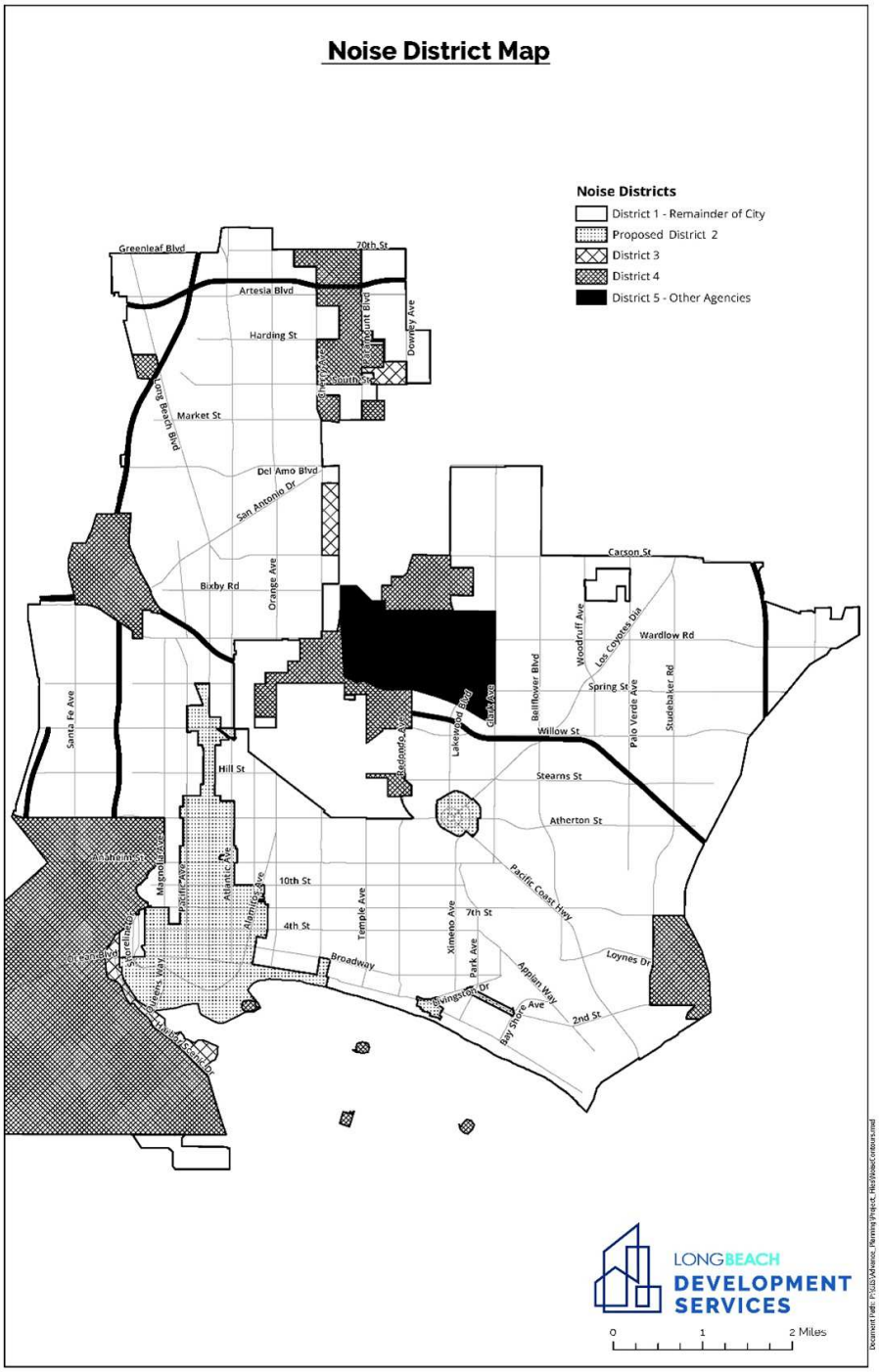
Table A
EXTERIOR NOISE LIMITS

Receiving Land Use District*	Time Period	Noise Level** (dBA)
District One	Night:	
	10:00 p.m.—7:00 a.m.	45
	Day:	
	7:00 a.m.—10:00 p.m.	50
District Two	Night:	
	10:00 p.m.—7:00 a.m.	55
	Day:	
	7:00 a.m.—10:00 p.m.	60
District Three	Any time	65
District Four	Any time	70
District Five	Regulated by other agencies and laws	
*District One:	Predominantly residential with other land use types also present	
District Two:	Mixed-use or predominantly commercial with other land use types also present	
Districts Three and Four:	Predominantly industrial with other land types use also present	
District Five:	Airport, freeways and waterways regulated by other agencies	

** Districts Three and Four limits are intended primarily for use at their boundaries rather than for noise control within those districts.

Table B
BACKGROUND NOISE CORRECTION

Difference between total noise and background noise alone (decibels)	Amount to be subtracted from
6—8	1
9—10	.5



(ORD-23-0027 §§ 2, 3, 2023; ORD-09-0030, § 1(exh. A), 2009; Ord. C-7959 § 1 (exh. A), 2004; Ord. C-5371 § 1 (part), 1977: prior code § 4430.6(b))

8.80.170 Interior noise limits—Sound levels.

A. The interior noise standards for various land use districts as presented in Table C shall apply, unless otherwise specifically indicated, within the structures located in designated zones with windows in their normal seasonal configuration.

TABLE C

Receiving Land Use District	Type of Land Use	Time Interval	Allowable Interior Noise Level (dBA)
All	Residential	10:00 p.m.—7:00 a.m. 7:00 a.m.—10:00 p.m.	35 45
All	Mixed-use	10:00 p.m.—7:00 a.m. 7:00 a.m.—10:00 p.m.	45 50
All	School	7:00 a.m.—10:00 p.m. (While school is in session)	45
Hospital, designated noise sensitive zones		Any time	40

B. No person shall operate, or cause to be operated, any source of sound indoors at any location within the incorporated limits of the City or allow the creation of any indoor noise which causes the noise level when measured inside the receiving dwelling unit to exceed:

1. The noise standard for that land use district as specified in Table C for a cumulative period of more than five (5) minutes in any hour; or

2. The noise standard plus five decibels (5 dB) for a cumulative period of more than one (1) minute in any hour; or

3. The noise standard plus ten decibels (10 dB) or the maximum measured ambient, for any period of time.

C. If the measured indoor ambient level exceeds that permissible within any of the first two (2) noise limit categories in this Section, the allowable noise exposure standard shall be increased in five decibel (5 dB) increments in each category as appropriate to reflect the indoor ambient noise level. In the event the indoor ambient noise level exceeds the third noise limit category, the maximum allowable indoor noise level under said category shall be increased to reflect the maximum indoor ambient noise level. (ORD-23-0027 § 4, 2023; Ord. C-5371 § 1 (part), 1977: prior code § 4430.7(a))

8.80.180 Interior noise limits—Correction for character of sound.

In the event the alleged offensive noise contains a steady audible tone such as a whine, screech or hum, or is a repetitive noise such as hammering or riveting, or contains music or speech conveying information content, the standard limits set forth in Table C in Section 8.80.170 shall be reduced by five decibels (5 dB). (Ord. C-5371 § 1 (part), 1977: prior code § 4430.7(b))

8.80.190 Noise disturbances—Prohibited.

No person shall unnecessarily make, continue or cause to be made or continued, any noise disturbance. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.8(a))

8.80.200 Noise disturbances—Acts specified.

The following acts, and the causing or permitting thereof, are declared to be in violation of this Chapter:

A. Radios, television sets, musical instruments and similar devices. Operating, playing or permitting the operation or playing of any radio, television set, phonograph, drum, musical instrument, or similar device which produces or reproduces sound:

1. Between the hours of ten p.m. and seven a.m. the following day in such a manner as to create a noise disturbance across a residential or

commercial real property line or at any time to violate the provisions of Sections 8.80.150 or 8.80.170 except for activities for which a variance has been issued by the noise control office,

2. In such a manner as to exceed the levels set forth in Table A in Section 8.80.160, measured at a distance of at least fifty feet (50') (fifteen (15) meters) from such device operating on a public right-of-way or public space;

B. Loudspeakers (amplified sound). Using or operating for any purpose any loudspeaker, loudspeaker system, or similar device between the hours of ten p.m. and seven a.m. the following day, such that the sound therefrom creates a noise disturbance across a residential real property line, or at any time violates the provisions of Sections 8.80.150 or 8.80.170, except for any noncommercial public speaking, public assembly or other activity for which a variance has been issued by the noise control office;

C. Street sales. Offering for sale, selling anything or advertising by shouting or outcry within any residential or commercial area or noise sensitive zone of the City except by variance issued by the noise control office. The provisions of this subsection shall not be construed to prohibit the selling by outcry of merchandise, food and beverages at licensed sporting events, parades, fairs, circuses or other similar licensed public entertainment events;

D. Animals and birds. Owning, possessing or harboring any animal or bird which frequently or for continued duration howls, barks, meows, squawks, or makes other sounds which create a noise disturbance across a residential or commercial real property line or within a noise sensitive zone. This provision shall not apply to public zoos;

E. Loading and unloading. Loading, unloading, opening, closing or other handling of boxes, crates, containers, building materials, garbage cans, or similar objects between the hours of ten p.m. and seven a.m. the following day in such a manner as to cause a noise disturbance across a residential real property line or at any time to violate the provisions of Sections 8.80.150 and 8.80.170;

F. Repealed;

G. Vibration. Operating or permitting the operation of any device that creates vibration which is above the vibration perception threshold of an individual at or beyond the property boundary of the source if on private property or at one hundred fifty feet (150') (forty-six (46) meters) from the source if on a public space or public right-of-way. For the purposes of this subsection, "vibration perception threshold" means the minimum ground or structure-borne vibrational motion necessary to cause a normal person to be aware of the vibration by such directed means as, but not limited to, sensation by touch or visual observation of moving objects. The perception threshold shall be presumed to be .001 g's in the frequency range 0—30 hertz and .003 g's in the frequency range between thirty and one hundred hertz;

H. Explosives, firearms and similar devices. Using or firing explosives, firearms, firecrackers or similar devices such that the sound therefrom creates a noise disturbance across a real property line, or within a noise sensitive zone, public space or public right-of-way, without first obtaining a variance issued by the noise control office or other appropriate regulatory agency;

I. Powered model vehicles. Operating or permitting the operation of powered model vehicles:

1. Between the hours of seven p.m. and seven a.m. the following day so as to create a noise disturbance across a residential or commercial real property line or at any time to violate the provisions of Sections 8.80.150 or 8.80.170,

2. In such a manner as to exceed the levels set forth in Table A in Section 8.80.160 measured at a distance not less than one hundred feet (100') (thirty (30) meters) from any point on the path of a vehicle operating on public space or public right-of-way;

J. Stationary nonemergency signaling devices.

1. Sounding or permitting the sounding of any electronically amplified signal from any stationary bell, chime, siren, whistle, or similar device, intended primarily for nonemergency purposes, from any place, for more than ten (10) seconds in any hourly period,

2. Houses of religious worship and chimes in the civic center shall be exempt from the operation of this provision,

3. Sound sources covered by this provision and not exempted under Subsection 8.80.200.J.2 of this Section may be exempted by a variance issued by the noise control office;

K. Emergency signaling devices.

1. The intentional sounding or permitting the sounding outdoors of any fire, burglar or civil defense alarm, siren, whistle or similar stationary emergency signaling device, except for emergency purposes or for testing, as provided in Subsection 8.80.200.K.2 of this Section,

2. a. Testing of a stationary emergency signaling device shall not occur before seven a.m. or after seven p.m. Any such testing shall only use the minimum cycle test time. In no case shall such test time exceed ten (10) seconds,

b. Testing of the complete emergency signaling system, including the functioning of the signaling device and the personnel response to the signaling device shall not occur more than once in each calendar month. Such testing shall not occur before seven a.m. or after ten p.m. The time limit specified in Subsection 8.80.200.K.2.a of this Section shall not apply to such complete system testing,

3. Sounding or permitting the sounding of any exterior burglar or fire alarm unless such alarm is automatically terminated within fifteen (15) minutes of activation;

L. Noise sensitive zones.

1. Creating or causing the creation of any sound within any noise sensitive zone, so as to exceed the specified land use noise standards set forth in Sections 8.80.150 and 8.80.170, or

2. Creating or causing the creation of any sound within or adjacent to any noise sensitive zone containing a hospital, nursing home, school, court or other designated use so as to interfere with the functions of such activity or annoy the patients or participants of such activity;

M. Domestic power tools.

1. Operating or permitting the operation of any mechanically powered saw, sander, drill, grinder, lawn or garden tool, or similar tool between ten p.m. and seven a.m. the following day so as to create a noise disturbance across a residential or commercial real property line,

2. Any motor, machinery, pump, etc., shall be sufficiently enclosed or muffled and maintained so as not to create a noise disturbance,

3. Operating leaf blowers, consisting of portable power equipment used in any landscape maintenance, construction, property repair or property maintenance for the purpose of blowing, dispersing or redistributing dust, dirt, leaves, grass clippings, cuttings, or trimmings from plants, trees or other debris is unlawful if operated within any residential area or in any nonresidential area within four hundred feet (400') of any residential area in the City between the hours after eight p.m. and before eight a.m. Monday through Friday, after five p.m. and before nine a.m. on Saturdays, and after five p.m. and before eleven a.m. on Sundays and legal holidays. Notwithstanding the provisions of Section 8.80.380, violations of this Subsection 8.80.200.M.3 shall be infractions except as specifically provided in this Section. The first violation in any one (1) year period shall be subject to a fine of fifty dollars ($50.00); a second violation in any one (1) year period shall be subject to a fine of seventy-five dollars ($75.00); a third violation in any one (1) year period shall be subject to a fine of one hundred dollars ($100.00). A fourth or subsequent violation of this Subsection in any one (1) year period may be filed as a misdemeanor. Notwithstanding the provisions of any other Section in this Chapter, the provisions of this subsection may be enforced by a Police Officer;

N. Air-conditioning or air refrigerating equipment. Operating or permitting the operation of any air-conditioning or air refrigerating equipment in such a manner as to exceed any of the following sound levels measured as specified in the American Society of Heating, Refrigeration and Air Conditioning Engineers Code of Recommended Practices:

Measurement Location	Units Installed Before 1-1-80 dB (A)	Units Installed On Or After 1-1-80 dB (A)
Any point on neighboring property line, five feet above grade level, no closer than three feet from any wall	60	55
Center of neighboring patio five feet above grade level, no closer than three feet from any wall	55	50
Outside the neighboring living area window nearest the equipment location, not more than three feet from the window opening, but at least three feet from any other surface	55	50

In case of conflict, the interior noise standards as specified in Section 8.80.170 shall nonetheless apply;

O. Places of public entertainment. Operating or permitting to be operated any loudspeaker or other source of sound in any place of public entertainment that exceeds the levels shown in Table D at any point normally occupied by a customer, without a conspicuous and legible sign stating

"WARNING, SOUND LEVELS WITHIN MAY CAUSE PERMANENT HEARING IMPAIRMENT."

Table D
MAXIMUM LEVELS ALLOWED IN PLACES OF PUBLIC ENTERTAINMENT

Duration Per Day Continuous Hours	Noise Level dB (A)
8	85
6	86
4	88
3	89
2	91
1 1/2	92
1	94
1/2	97
1/4 or less	100

P. Tampering. The following acts or the causing thereof are prohibited:

1. The removal or rendering inoperative by any person other than for purposes of maintenance, repair, or replacement, of any noise control device or element of design or noise label of any product identified under Subsection 8.80.040.G and Subsection 8.80.050.C. The Noise Control Officer may, by regulation, list those acts which constitute violation of this provision,

2. The use of a product, identified under Subsection 8.80.040.G and Subsection 8.80.050.C, which has had a noise control device or element of design or noise label removed or rendered inoperative with knowledge that such action has occurred. (Ord. C-7745 § 1, 2001; Ord. C-7175 § 1, 1994; Ord. C-6474 § 2, 1988; Ord. C-6036 § 1, 1984; Ord. C-5371 § 1 (part), 1977: prior code § 4430.8(b))

8.80.202 Construction activity—Noise regulations.

The following regulations shall apply only to construction activities where a building or other related permit is required or was issued by the Building Official and shall not apply to any construction activities within the Long Beach harbor district as established pursuant to Section 201 of the City Charter.

A. Weekdays and federal holidays. No person shall operate or permit the operation of any tools or equipment used for construction, alteration, repair, remodeling, drilling, demolition or any other related building activity which produce loud or unusual noise which annoys or disturbs a reasonable person of normal sensitivity between the hours of seven p.m. and seven am. the following day on weekdays, except for emergency work authorized by the Building Official. For purposes of this Section, a federal holiday shall be considered a weekday.

B. Saturdays. No person shall operate or permit the operation of any tools or equipment used for construction, alteration, repair, remodeling, drilling, demolition or any other related building activity which produce loud or unusual noise which annoys or disturbs a reasonable person of normal sensitivity between the hours of seven p.m. on Friday and nine a.m. on Saturday and after six p.m. on Saturday, except for emergency work authorized by the Building Official.

C. Sundays. No person shall operate or permit the operation of any tools or equipment used for construction, alteration, repair, remodeling, drilling, demolition or any other related building activity at any time on Sunday, except for emergency work authorized by the Building Official or except for work authorized by permit issued by the Noise Control Officer.

D. Owner's/employer's responsibility. It is unlawful for the landowner, construction company owner, contractor, subcontractor or employer of persons working, laboring, building, or assisting in construction to permit construction activities in violation of provisions in this Section.

E. Sunday work permits. Any person who wants to do construction work on a Sunday must apply for a work permit from the Noise Control Officer. The Noise Control Officer may issue a Sunday work permit if there is good cause shown; and in issuing such a permit, consideration will be given to the nature of the work and its proximity to residential areas. The permit may allow work on Sundays, only between nine a.m. and six p.m., and it shall designate the specific dates when it is allowed.

F. Enforcement. Notwithstanding the provisions of Sections 8.80.370 and 8.80.380, this Section may be enforced by a Police Officer.

Any person who violates any provision of this Section is guilty of a misdemeanor and shall be fined in an amount not to exceed five hundred dollars ($500.00), or be imprisoned for a period not to exceed one hundred eighty (180) days, or by both such fine and imprisonment. Each day that a violation occurs shall constitute a separate offense and shall be punishable as such.

Whenever an employee is prosecuted for a violation of this noise control ordinance, the court shall, at the request of the employee, take appropriate action to make the landowner, construction company owner, contractor, subcontractor or employer a codefendant. (Ord. C-6488 § 1, 1988; Ord. C-6474 § 1, 1988)

8.80.210 Refuse collection vehicles.

No person shall collect refuse with a refuse collection vehicle between the hours of seven p.m. and seven a.m. the following day in a residential area or noise sensitive zone. (Ord. C-5371 § 1 (part), 1981: prior code § 4430.9(a))

8.80.220 Motor vehicle horns.

It is unlawful for any person within the City to sound a vehicular horn within any residential zone except as a warning signal, as provided in the Vehicle Code of the State. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.9(b))

8.80.230 Recreational motorized vehicles operating off the public right-of-way.

No person shall operate or cause to be operated any recreational motorized vehicle off a public right-of-way in such a manner that the sound level emitted therefrom violates the provisions of Sections 8.80.150 and 8.80.170. This Section shall apply to all recreational motorized vehicles, whether or not duly licensed and registered, including, but not limited to, commercial or noncommercial racing vehicles, motorcycles, go-carts, amphibious craft, campers, and dune buggies, but not including motorboats. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.9(c))

8.80.240 Vehicle, motorboat or aircraft repair and testing.

A. Repairing, rebuilding, modifying or testing any motor vehicle, motorboat or aircraft in such a manner as to create a noise disturbance across a residential real property line, or at any time to violate the provisions of Sections 8.80.150 or 8.80.170 shall not be permitted except where said activities are directly related to officially sanctioned events.

B. This provision shall not apply to aircraft within the airport property or within any other aviation-related property abutting it. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.9(d))

8.80.250 Exemption—Emergencies.

The provisions of this Chapter shall not apply to:

A. The emission of sound for the purpose of alerting persons to the existence of an emergency; or

B. The emission of sound in the performance of emergency work. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.10(a))

8.80.260 Exemption—Oil and gas wells.

The provisions of this Chapter shall not apply to:

A. Normal well servicing, remedial or maintenance work performed within an existing well which does not involve drilling or redrilling and which is restricted to the hours between seven a.m. and seven p.m., exclusive of weekends and holidays, in residential areas;

B. Any drilling or redrilling work which is done in full compliance with Subsection 8.80.040.E and Sections 8.80.060 through 8.80.120, and with the soundproofing and all other requirements of Section 12.32.030. (Ord. C-5576 § 1, 1980; Ord. C-5371 § 1 (part), 1977: prior code § 4430.10(b))

8.80.270 Exemption—Warning devices.

Warning devices necessary for the protection of public safety as, for example, police, fire and ambulance sirens and train horns shall be exempted from the provisions of this Chapter. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.10(c))

8.80.280 Exemption—Entertainment events.

The provisions of this Chapter shall not apply to occasional outdoor or indoor gatherings, public dances, shows and sporting and entertainment events, provided said events are conducted pursuant to a permit or license or other entitlement issued by the City relative to the staging of said events. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.10 (d))

8.80.290 Exemption—From exterior noise standards.

The provisions of Section 8.80.150 shall not apply to activities covered by the following Sections:

A. Section 8.80.200 C, street sales;

B. Section 8.80.200 D, animals and birds;

C. Section 8.80.200 J, stationary nonemergency signaling devices;

D. Section 8.80.200 K, emergency signaling devices;

E. Section 8.80.200 M, domestic power tools;

F. Section 8.80.200 N, air conditioning or air refrigerating equipment; and

G. Section 8.80.210, refuse collection vehicles. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.10 (e))

8.80.300 Abatement of nonconforming industrial noise sources.

A. Intent. It is the intent of this Section to recognize that the eventual abatement, as expeditiously and as fairly as possible, of existing noise sources that are not in conformity with the provisions of this Chapter is as important as the prohibition of new noise sources that would violate the provisions of this Chapter. It is the intent of this Section that any abatement of nonconforming industrial noise sources shall be effected so as to avoid any undue hardship.

B. Abatement. All existing nonconforming industrial noise sources shall be granted an amortization period of ten (10) years from the effective date of this Chapter to bring their existing facilities into compliance with this Chapter; provided, that:

1. They are located in industrial districts delineated in the City zoning ordinance or are located in accordance with a valid special use permit at the time of adoption of this Chapter;

2. They are not changed to another industrial use during the amortization period;

3. They are not altered so as to increase or intensify their noise generation;

4. If they are structurally expanded during the amortization period, the new portion must immediately meet the standards of this Chapter;

5. If they should be rebuilt after damage or destruction of more than fifty percent (50%) of the preexisting value, they must be rebuilt in such a manner as to immediately meet the standards of this Chapter. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.10 (f))

8.80.310 Exemption—Federal or State preempted activities.

The provisions of this Chapter shall not apply to any other activity to the extent regulation thereof has been preempted by State or federal law. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.10(g))

8.80.320 Conflicting regulations.

A. These regulations are not intended to abrogate or impair the provisions of any other section of this Code which is not in conflict with the provisions of this Chapter. However, where these regulations are more restrictive than those of other laws, regulations or covenants, these regulations shall control.

B. Upon written request, the noise control office is authorized to issue official interpretations of this Chapter without public hearing. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.10 (h))

8.80.330 Exemption—Public health, welfare and safety activities.

The provisions of this Chapter shall not apply to construction maintenance and repair operations conducted by public agencies and/or utility companies or their contractors which are deemed necessary to serve the best interests of the public and to protect the public health, welfare and safety, including, but not limited to, street sweeping, debris and limb removal, removal of downed wires, restoring electrical service, repairing traffic signals, unplugging sewers, vacuuming catchbasins, repairing of damaged poles, removal of abandoned vehicles, repairing of water hydrants and mains, gas lines, oil lines, sewers, storm drains, roads, sidewalks, etc. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.10 (i))

8.80.340 Variance—Exemption from regulations.

A. The Noise Control Officer is authorized to grant variances for exemption from any provision of this Chapter, subject to limitations as to area, noise levels, time limits, and other terms and conditions as the Noise Control Officer determines are appropriate to protect public health, safety and welfare from the noise emanating therefrom. This Section shall in no way affect the obligation to obtain any permit or license required by law for such activities.

B. Any person seeking a variance shall file an application with the noise control office. The application shall contain information which demonstrates that bringing the source of sound or activity for which the variance is sought into compliance with this Chapter would create an unreasonable hardship on the applicant, on the community, or on other persons. The application shall be accompanied by a fee in the amount set by resolution of the City Council. A separate application shall be filed for each noise source; provided, however, that several fixed sources on a single property may be combined into one (1) application. Notice of an application for a variance shall be published according to rules established by the noise control office; all residents whom the Noise Control Officer determines may be adversely affected by the noise shall be notified. Any individual who claims to be adversely affected by the issuance of the variance may file a statement with the noise control office containing any information to support his claim. If at any time the Noise Control Officer finds that a sufficient controversy exists regarding an application, a public hearing will be held.

C. In determining whether to grant or deny the application, the Noise Control Officer shall balance the hardship on the applicant, the community, or other persons by not granting the variance against the adverse impact on the health, safety and welfare of persons affected, the adverse impact on property affected, and any other adverse impact by granting the variance. Applicants for variances and persons contesting variances may be required to submit such information as the noise control office may reasonably require. In granting or denying an application, the Noise Control Officer shall keep a public record of the decision and the reasons for denying or granting the variance.

D. A variance shall be granted by written notice to the applicant containing all necessary conditions, including a time limit on the permitted

activity. The variance shall not become effective until all conditions are agreed to by the applicant. Noncompliance with any condition of the variance shall terminate the variance.

E. The term of a variance may not exceed three hundred sixty-five (365) days from the date of issuance. An application for extension of time limits specified in a variance or for modification of other substantial conditions shall be treated as an application for a new variance.

F. The Noise Control Officer will issue guidelines defining the procedures to be followed in applying for a variance and the criteria to be considered in deciding whether to grant a variance. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.11(a))

8.80.350 Variance—Time to comply.

Within ninety (90) days following the effective date of this Chapter, the owner of any commercial or industrial source of sound may apply to the noise control office for a time variance to comply with the provisions of this Chapter. The Noise Control Officer shall have the authority, consistent with these Sections 8.80.340 through 8.80.360, to grant a time variance (not to exceed one hundred eighty (180) days from the effective date of this Chapter). The same procedures and considerations by the Noise Control Officer as provided in Section 8.80.340 shall likewise apply. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.11(b))

8.80.360 Variance—Appeal to decision.

Within ten (10) days after notice by the Noise Control Officer or denial or conditional approval of a variance, or within ten (10) days after the effective date of the revocation of a variance by the Noise Control Officer, the affected person may appeal to the City Council, in writing. The City Council, after notice and a public hearing, may sustain, reverse or modify the decision of the Noise Control Officer; such order may be made subject to specified conditions.

A. Filing Fee. The appeal shall be filed in triplicate with the City Clerk at the City Hall, 333 West Ocean Boulevard, Long Beach, California, along with the payment of a fee in the amount set by resolution of the City Council. A copy of the appeal shall also be served on the Noise Control Officer.

B. Contents of Appeal. An appeal to review a denial or conditional approval of a variance shall contain the application, a copy of the Noise Control Officer's action setting forth the reasons for the denial or the conditions of the approval, and the reasons for appeal. An appeal to review a variance revocation shall include a copy of the variance, the Noise Control Officer's revocation notice, and his reasons for revocation, and the reasons for appeal. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.11(c))

8.80.370 Violation—Presumed.

Any noise exceeding the level limit which can be attributed to a specific facility in a designated noise district as specified in Sections 8.80.150 through 8.80.180, or the prohibited actions specified in Sections 8.80.190 and 8.80.200 shall be presumed to be a violation of the provisions of these regulations. Enforcement of noise control regulations shall be undertaken only upon receipt of a written sworn complaint made by a person who resides or owns property within the noise district into which the alleged noise intrudes. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.12(a))

8.80.380 Violation—Penalty.

Any person found in violation of any of the provisions of this Chapter upon a documented determination and the failure to comply with an abatement order or other notice issued by the Noise Control Officer and subsequently convicted in a court of competent jurisdiction for such violation will be deemed guilty of a misdemeanor and shall be fined in an amount not to exceed five hundred dollars ($500.00), or be imprisoned for a period not to exceed one hundred eighty (180) days, or by both such fine and imprisonment. Each day (after the Noise Control Officer has made a documented determination and has issued an abatement order) that a violation is permitted to continue shall constitute a separate offense and

shall be punishable as such. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.12(b))

8.80.390 Violation—Abatement order.

A. Except as provided in Subsection 8.80.390.B, in lieu of issuing a notice of violation as provided in Section 8.80.400, the Noise Control Officer may issue an order requiring the abatement of a sound source alleged to be in violation within a reasonable time period and according to guidelines adopted by the noise control office.

B. An abatement order shall not be issued for any violation when the Noise Control Officer or other enforcement agency has reason to believe that there will not be compliance with an abatement order.

C. No further action shall be taken in the event that the cause of the violation has been removed and the condition abated or fully corrected within the time period specified in the written notice. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.12(c))

8.80.400 Violation—Notice.

Except where a person is acting in good faith to comply with an abatement order issued pursuant to Subsection 8.80.390.A, violation of any provision of this Chapter shall be cause for a notice of violation to be issued by the Noise Control Officer or other responsible enforcement official according to procedures which the noise control office may prescribe. Thereafter, the City may resort to any other appropriate legal action as provided by law. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.12(d))

8.80.410 Violation—Additional remedies.

As an additional remedy, the operation or maintenance of any device, instrument, vehicle or machinery in violation of any provision of this Chapter, which operation or maintenance causes or creates sound levels or vibration exceeding the allowable limits as specified in this Chapter, shall be deemed and is declared to be a public nuisance and may be subject to abatement summarily by a restraining order or injunction issued by a court of competent jurisdiction. Additionally, no provision of this Chapter shall be construed to impair any common law or statutory cause of action, or legal remedy therefrom, of any person for injury or damage arising from any violation of this Chapter or from other law. (Ord. C-5371 § 1 (part), 1977: prior code § 4430.12(e))

CHAPTER 8.81 FIREWORKS

8.81.010 Definitions.

The following definitions belong to this Chapter:

A. "Fireworks" has the same meaning as in California Health and Safety Code section 12511 which states, "any device containing chemical elements and chemical compounds capable of burning independently of the oxygen of the atmosphere and producing audible, visual, mechanical, or thermal effects which are useful as pyrotechnic devices or for entertainment. The term "fireworks" includes, but it is not limited to, devices designated by the manufacturer as fireworks, torpedoes, skyrockets, roman candles, rockets, Daygo bombs, sparklers, party poppers, paper caps, chasers, fountains, smoke sparks, aerial bombs, and firework kits."

B. "Host" means a person who either:

1. Is in charge of private property, including, but not limited to, an owner, tenant, landlord, or property manager of the property; or

2. Organizes, supervises, officiates, conducts, controls, or is otherwise in charge of the activity on the property.

C. "Response costs" means costs associated with law enforcement, fire, medical, or other emergency personnel responding to, remaining at, and leaving the scene of a gathering, including but not limited to:

1. Salaries and benefits of law enforcement, fire, medical, or other emergency personnel;

2. Administrative costs;

3. The cost of any medical treatment of injuries to any law enforcement, fire, medical or other emergency personnel;

4. The cost of using any city equipment;

5. The cost of repairing any damaged city equipment or property; and

6. Any other costs related to enforcement of this article.

D. "Dangerous Fireworks" has the same meaning as in California Health and Safety Code Section 12505.

(ORD-21-0017(Emerg.) § 1, 2021)

8.81.020 General prohibition against possession, sale or use of Fireworks.

Except as otherwise provided in Chapter 18.48.720, no person shall possess, sell, use, display or explode any Fireworks as defined in section 8.81.010 A. or any kind of fireworks, by whatsoever name known, within the City of Long Beach.

(ORD-21-0017(Emerg.) § 1, 2021)

8.81.030 General prohibition against possession, sale or use of Dangerous Fireworks.

No person shall possess, sell, use, display or explode any Dangerous Fireworks within the City of Long Beach.

(ORD-21-0017(Emerg.) § 1, 2021)

8.81.040 Seizure of fireworks.

The Police Chief, Fire Chief, or designee, may seize, take, remove or cause to be removed, at the expense of the owner, all fireworks possessed or displayed in violation of this Chapter.

(ORD-21-0017(Emerg.) § 1, 2021)

8.81.050 Host's liability.

A. No host shall allow any person to violate a provision of this Chapter on the host's private property, except as provided below in Subsection A.2.

1. Whenever a host is present at the private property while another person violates a provision of this Chapter, there shall be a rebuttable presumption that the host knew or should have known of the violation.

2. The provisions of this Section shall not apply to a host who initiates contact with law enforcement or fire officials to assist in removing any person from the property or terminating the activity in order to comply with this Chapter, if the request for assistance is made before any other person contacts law enforcement or fire officials to complain about the violation of this Chapter.

B. No host shall aid or abet another person's violation of a provision of this Chapter in a public right-of-way adjacent to the host's private property. A host aids and abets another person's violation of a provision of this Chapter if he or she knows of the other person's unlawful purpose and the host specifically intends to, and does in fact, aid, facilitate, promote, encourage, or instigate the other person's commission of that violation.

(ORD-21-0017(Emerg.) § 1, 2021)

8.81.060 Violation penalty.

A. In addition to any other remedy allowed by law, any person who violates a provision of this Chapter is subject to criminal sanctions, civil actions, and administrative penalties pursuant to Chapter 1.32.

B. Notwithstanding the provisions of Section 1.32.060 or 9.37.120(a), the amount of an administrative penalty for a violation of this Chapter is one thousand dollars ($1,000.00) for each violation. In the event the fireworks are confiscated and have to be disposed of by the Fire Marshall, there shall be an additional charge of two hundred and fifty dollars assessed for disposal fee. Each day of recurrence of any violation shall constitute a separate offense and may be treated as such pursuant to this Section.

C. Any person who violates Sections 8.81.020 or 8.81.030 and any host who violates Section 8.81.050 shall be liable for the response costs relating to the violation. All hosts who violate Section 8.81.050 in the same incident are jointly and severally liable for the response costs relating to the violation. The amount of response costs constitutes a debt owed to the city.

1. Notice of the response costs shall be served by first-class mail on the person or hosts liable for such costs. The notice shall contain the following information:

a. The name of the person or host who is liable for the response costs;

b. The address of the private property where the incident occurred;

c. The date and time of the response;

d. The law enforcement, fire, or other emergency response personnel who responded; and

e. An itemized list of the response costs.

2. Payment for response costs shall be remitted to the City of Long Beach within thirty (30) calendar days of the date of the notice. The payment of any such costs shall be stayed upon the filing of a timely appeal.

3. A person or host charged with response costs may, within ten (10) calendar days of the date of the notice of response costs, appeal the response costs in accordance with Chapter 9.65. The appeal hearing shall be scheduled and conducted in the manner prescribed in Chapter 9.65. Failure to timely file an appeal constitutes a failure to exhaust available administrative remedies, and bars any further review or administrative appeal of the response costs.

D. Violations of this Chapter are hereby declared to be a public nuisance.

E. All remedies prescribed under this Chapter are cumulative and the election of one or more remedies does not bar the city from the pursuit of any other remedy to enforce this Chapter. (ORD-21-0017(Emerg.) § 1, 2021)

CHAPTER 8.85 UNDERGROUND AND ABOVE GROUND STORAGE TANKS

8.85.010 Creation of Long Beach CUPA.

The purpose of this Chapter is to designate the Long Beach CUPA as the Unified Program Agency for purposes of enforcing and assuming responsibility for the regulation of the underground storage of hazardous substances within Long Beach, and as the local agency enforcing the Aboveground Petroleum Storage Act requirements under State law. (ORD-23-0010 § 1, 2023; Ord. C-7483 § 1, 1997)

8.85.020 Definitions.

For purposes of this Chapter, the following definitions shall apply:

A. "Certified Uniform Program Agency" or "CUPA" means the agency certified by the Secretary of the California Environmental Protection Agency to implement the unified program in the City of Long Beach.

B. "Long Beach CUPA" means the Long Beach Certified Unified Program Agency created by the City of Long Beach and certified by the Secretary of the California Environmental Protection Agency. (ORD-23-0010 § 1, 2023; Ord. C-7483 § 1, 1997)

8.85.030 Designation of Long Beach CUPA as local agency for underground storage tanks.

The City designates the Long Beach CUPA as its "local agency" pursuant to Section 25283 and Chapter 6.11 of Division 20 of the California Health and Safety Code, to be the responsible governmental agency for purposes of implementing and enforcing Chapter 6.7 of Division 20 of the California Health and Safety Code, and Chapter 16 of Division 3 of Title 23 of the California Code of Regulations, and other related statutes and regulations, all as may be amended and/or supplemented from time to time. The Long Beach CUPA may adopt and enforce requirements which are equal to or more stringent than those set forth under State law, in accordance with California Health and Safety Code Section 25283.5. The City Clerk shall cause to be filed three (3) copies of such equal or more stringent requirements with the Clerk's office, and these copies shall be maintained at all times by the City Clerk for use and examination by the public. The designation of authority granted hereunder may be modified or rescinded at any time by modification or repeal of this Section. (ORD-23-0010 § 1, 2023; Ord. C-7483 § 1, 1997)

8.85.040 Designation of Long Beach CUPA as Unified Program Agency for above ground storage tanks.

The City designates the Long Beach CUPA as the Certified Unified Program Agency to enforce

the Aboveground Petroleum Storage Act requirements of Chapter 6.67 of Division 20 of the California Health and Safety Code and as the Uniform Program Agency under other related statutes and regulations, all as may be amended and/or supplemented from time to time. As permitted by State law, the Long Beach CUPA may adopt and enforce requirements which are equal to or more stringent than those referenced herein. The City Clerk shall cause to be filed three (3) copies of such equal or more stringent requirements with the Clerk's office, and these copies shall be maintained at all times by the City Clerk for use and examination by the public. The designation of authority granted hereunder may be modified or rescinded at any time by modification or repeal of this Section. (ORD-23-0010 § 1, 2023; Ord. C-7483 § 1, 1997)

8.85.050 Fees.

All persons and facilities governed by Chapters 6.67 and 6.7 of Division 20 of the California Health and Safety Code shall pay those fees established by the Long Beach CUPA by Ordinance or Resolution, for purposes of implementing Chapters 6.67 and 6.7 of Division 20 of the California Health and Safety Code, and all other provisions related thereto, along with all applicable regulations thereunder, including Chapter 16 of Division 3 of Title 23 of the California Code of Regulations. (ORD-23-0010 § 1, 2023; Ord. C-7483 § 1, 1997)

8.85.060 Violations.

All persons and facilities governed by Chapters 6.67 and 6.7 of Division 20 of the California Health and Safety Code shall comply with such provisions and the regulations thereunder, including, but not limited to, Chapter 16 of Division 3 of Title 23 of the California Code of Regulations. Any violation of this Chapter and the provisions of State law referenced in this Chapter is a violation of this Code and is subject to civil and criminal fines, penalties and other remedies as provided for under State law and this Code, including restitution and injunctive relief. (ORD-23-0010 § 1, 2023; Ord. C-7483 § 1, 1997)

CHAPTER 8.86 HAZARDOUS MATERIALS RELEASE RESPONSE PLANS AND INVENTORY

8.86.010 Definitions.

The words and phrases listed below shall be defined as provided in this Section. All other words and phrases not defined in this Section shall have the same meaning as defined in Section 25501 of the California Health and Safety Code, and if not defined therein shall be interpreted in accordance with their plain and ordinary meaning.

A. "JPA" or "Joint Powers Agreement" means that agreement executed by the Cities of Long Beach and Signal Hill on December 21, 1995 entitled "Joint Powers Agreement Creating a Long Beach/Signal Hill Unified Program Agency", as such Agreement may be amended from time to time.

B. "Long Beach/Signal Hill CUPA" means the Long Beach/Signal Hill Unified Program Agency created by the JPA and certified by the Secretary of the California Environmental Protection Agency. (Ord. C-7483 § 2, 1997)

8.86.020 Delegation of administrative responsibility.

The City designates the Long Beach/Signal Hill CUPA as the administering agency for Long Beach for the enforcement and regulation of Chapter 6.95 of Division 20 of the California Health and Safety Code and Article 80 of the Uniform Fire Code and all applicable regulations thereunder, as such may be amended from time to time. As permitted by State law, the Long Beach/Signal Hill CUPA may adopt and enforce requirements which are equal to or more stringent than those referenced to herein. The City Clerk shall cause to be filed three (3) copies of such equal or more stringent requirements with the Clerk's office, and these copies shall be maintained at all times by the City Clerk for use and examination by the public. Long Beach/Signal Hill CUPA shall administer its

responsibilities under this Chapter pursuant to the JPA. The designation of authority granted hereunder may be modified or rescinded at any time by modification or repeal of this Section. (Ord. C-7483 § 2, 1997)

8.86.030 Fees.

All persons and businesses governed by Chapter 6.95 of Division 20 of the California Health and Safety Code shall pay those fees established by the Long Beach/Signal Hill CUPA by Ordinance or Resolution, for purposes of implementing Chapter 6.95 of Division 20 of the California Health and Safety Code, and all other provisions related thereto, along with all applicable regulations thereunder. (Ord. C-7483 § 2, 1997)

8.86.040 Violations.

All persons and businesses governed by Chapter 6.95 of Division 20 of the California Health and Safety Code shall comply with such provisions and the regulations thereunder. Any violation of this Chapter and the provisions of State law referenced in this Chapter is a violation of this Code and is subject to civil and criminal fines, penalties and other remedies as provided for under State law and under this Code, including restitution and injunctive relief. (Ord. C-7483 § 2, 1997)

CHAPTER 8.87 HAZARDOUS WASTE CONTROL

8.87.010 Purpose and intent.

The purpose of this Chapter is to designate the Long Beach CUPA as the administering agency for the enforcement and regulation of Chapter 6.5 of Division 20 of the California Health and Safety Code, and the applicable requirements thereunder, within the jurisdiction of the City. (ORD-23-0010 § 2, 2023; Ord. C-7483 § 3, 1997)

8.87.020 Definitions.

A. "Certified Uniform Program Agency" or "CUPA" means the agency certified by the Secretary of the California Environmental Protection Agency to implement the unified program in the City of Long Beach.

B. "Long Beach CUPA" means the Long Beach Certified Unified Program Agency created by the City of Long Beach and certified by the Secretary of the California Environmental Protection Agency. (ORD-23-0010 § 2, 2023; Ord. C-7483 § 3, 1997)

8.87.030 Designation of Long Beach CUPA.

The City designates the Long Beach CUPA as the Certified Unified Program Agency for Long Beach for the purpose of enforcing the requirements of Chapter 6.5 of Division 20 of the California Health and Safety Code and the regulations related thereto, as provided for under Section 25404(c)(1) of the California Health and Safety Code, all as may be amended and/or supplemented from time to time. As permitted by State law, the Long Beach CUPA may adopt and enforce requirements which are equal to or more stringent than those referenced to herein. The City Clerk shall cause to be filed three (3) copies of such equal or more stringent requirements with the Clerk's office, and these copies shall be maintained at all times by the City Clerk for use and examination by the public. The Long Beach CUPA under this Chapter shall administer its responsibilities. The designation of authority granted hereunder may be modified or rescinded at any time by modification or repeal of this Section. (ORD-23-0010 § 2, 2023; Ord. C-7483 § 3, 1997)

8.87.040 Fees.

All persons and facilities shall pay those fees established by the Long Beach CUPA, by Ordinance or Resolution, for purposes of implementing and carrying out the responsibilities of the Certified Unified Program Agency under Chapter 6.5 of Division 20 of the California Health and Safety Code and all applicable regulations thereunder. (ORD-23-0010 § 2, 2023; Ord. C-7483 § 3, 1997)

8.87.050 Violations.

All persons and facilities governed by Chapter 6.5 of Division 20 of the California Health and

Safety Code shall comply with such provisions and the regulations thereunder. Any violation of this Chapter and the provisions of State law referenced in this Chapter is a violation of this Code and is subject to civil and criminal fines, penalties and other remedies as provided for under State law and under this Code, including restitution and injunctive relief. (ORD-23-0010 § 2, 2023; Ord. C-7483 § 3, 1997)

CHAPTER 8.88 HAZARDOUS MATERIALS—CLEANUP

8.88.010 Purpose.

The purpose of this Chapter is to require compliance with the hazardous waste control laws and to require proper cleanup methods and procedures for spills of hazardous material. (Ord. C-6266 § 1 (part), 1986)

8.88.020 Scope.

This Chapter shall apply to all sites where a hazardous material spill has occurred. The extent of the site characterization shall be defined by the Health Officer.

After the site characterization is completed, the property owner, applicant or other responsible party shall clean up the spill by complying with the remediation requirements of this Chapter. The extent of the site remediation shall be defined by the Health Officer. (Ord. C-6266 § 1 (part), 1986)

8.88.030 Definitions.

The words and terms used in this Chapter shall have the meanings indicated in this Section as follows:

A. "Site" means the location of the spill or escape of hazardous materials under investigation.

B. "Hazardous waste" means any material(s) as defined to be hazardous in Title 22 of the California Administrative Code.

C. "Characterization" means the process of determining the qualitative and quantitative nature of a hazardous waste spill or escape into the environment.

D. "Remediation" means the process of abating the spill or escape of a hazardous material.

E. "Hazardous waste control laws" mean those laws and regulations which are adopted by the State of California and the City of Long Beach which are enforced by the Health Officer or other departments of the City.

F. "Health Officer" means the Health Officer of the City of Long Beach and any deputy Health Officer or designee.

G. "Initial report" means documentation proposing what remedial actions will be taken for abatement and the justification of these actions.

H. "Final report" means documentation showing the conclusions or findings reached on proposed actions and the justification for these conclusions or findings. (Ord. C-6266 § 1 (part), 1986)

8.88.040 Site characterization.

A. A site characterization is required whenever there is a suspected escape or spill of hazardous material into the environment or for the purpose of determining applicability of the hazardous waste control laws. No person, firm or corporation shall engage in the process of site characterization until a permit has been issued pursuant to this Chapter.

B. Application for a site characterization permit and the permit fee designated by resolution of the City Council shall be filed with the Health Officer. In addition, documentation showing the qualifications of the person(s) performing the site characterization must be submitted. No person, firm or corporation shall engage in site characterization without the appropriate education, experience, equipment and professional certification, as determined by the Health Officer. (Ord. C-6266 § 1 (part), 1986)

8.88.050 Site remediation.

A. Site remediation is required whenever it is determined that there was an escape or spill of hazardous material into the environment. No person, firm or corporation shall engage in the process of site remediation until a permit has been issued pursuant to this Chapter.

B. Application for a site remediation permit and the permit fee designated by resolution of the City Council shall be filed with the Health Officer. In addition, documentation showing the qualifications of the person(s) performing the site remediation must be submitted. No person, firm or corporation shall engage in site remediation without the appropriate education, experience, equipment and professional certification, as determined by the Health Officer. (Ord. C-6266 § 1 (part), 1986)

8.88.060 Initial and final reports.

Initial and final reports shall be submitted for both site characterization and site remediation, and the Health Officer shall determine their compliance with the hazardous waste control laws. (Ord. C-6266 § 1 (part), 1986)

CHAPTER 8.90 ALCOHOLIC BEVERAGES—WARNING SIGNS

8.90.010 Signs—Dangers of consuming alcoholic beverages during pregnancy.

A. Duty to Post. Any person or entity who owns, operates, manages, leases or rents a premises offering for sale or dispensing for consideration to the public, alcoholic beverages including beer and wine shall post or display a sign or notice on the premises as provided in this Section.

B. Requirements. The sign or notice shall comply with the readability requirements specified in this Section and shall read substantially as follows: "WARNING: DRINKING ANY ALCOHOLIC BEVERAGE—INCLUDING BEER, WINE AND LIQUOR—DURING PREGNANCY CAN CAUSE BIRTH DEFECTS."

The telephone number of the Long Beach Health Department shall be printed near the bottom of the sign. The word "WARNING" shall be highlighted and lettered in red against a white background, and black letters shall be used for the rest of the sign. The words "ANY" and "BIRTH DEFECTS" shall be underscored. In no event shall a sign as required in this Section be smaller than eight inches (8") wide and eight inches (8") long, and the lettering shall not be less than one inch (1") in height, except for the telephone number of the Long Beach Health Department.

C. Placement. The sign or notice required by this Section shall be placed as follows:

1. Where the sale or dispensing of alcoholic beverages, including beer and wine, to the public is primarily intended for consumption off the premises, at least one (1) sign shall be placed to assure that it is readable from all locations at which the sale or dispensing occur.

2. Where the sale or dispensing of alcoholic beverages, including beer and wine, to the public is primarily provided through over-the-counter ser-

vice, at least one (1) sign shall be placed to assure that it is readable from all counter locations available to the public.

3. Where the sale or dispensing of alcoholic beverages, including beer and wine, to the public is primarily provided for consumption on the premises by the public at tables served by food or beverage service persons, at least one (1) sign shall be placed to assure that it is readable by the public entering the premises; provided however, that notices may be placed or displayed at each of the tables in a manner which will assure that the notices are as readily visible and readable as materials provided to the public which list food and beverage prices. (Ord. C-6373 § 1, 1987)

CHAPTER 8.94 AIDS DISCRIMINATION

8.94.010 Definitions.

The following words and phrases, whenever used in this Chapter, shall be construed as defined in this Section:

A. "AIDS" shall mean the disease or syndrome known as Acquired Immune Deficiency Syndrome as defined by the United States Centers for Disease Control.

B. "AIDS related condition" means a clinical finding of AIDS Related Complex (ARC) or the testing of positive to the antibody to the virus believed to result in AIDS, sometimes known as HIV, HTLV-III, or LAV, regardless of whether any clinical manifestations of AIDS or ARC are present. A person with an AIDS related condition shall also include a person perceived to have AIDS, ARC or to have tested positive to the antibody to the virus that is believed to result in AIDS, regardless of the accuracy of this perception.

C. "Business establishment" means any entity, other than the state or local governmental entity, however organized, which furnishes goods or services to the general public. An otherwise qualifying establishment which has membership requirements is considered to furnish services to the general public if its membership requirements: (1) consist only of payment of fees; or (2) consist of requirements under which a substantial portion of residents of the City qualify.

D. "Person" means any natural person, firm, corporation, partnership, or other organization, association, or group of persons however organized, but shall not include the State or the County of Los Angeles.

E. "Individual" means any natural person. (Ord. C-6635 § 1 (part), 1989)

8.94.020 Employment practices.

A. It shall be unlawful for any employer to fail or refuse to hire, or to discharge any individual, or otherwise to discriminate against any individual with respect to compensation, terms, conditions, or privileges of employment because in whole or in part, the individual has AIDS or an AIDS related condition.

B. It shall be unlawful for an employer to limit, segregate, or classify employees or applicants for employment in any manner which would deprive or tend to deprive any individual of employment opportunities, or adversely affect his or her employment status because, in whole or in part, the individual has AIDS or an AIDS related condition.

C. It shall be unlawful for an employment agency to fail or refuse to refer for employment any individual or to otherwise discriminate against any individual because, in whole or in part, the individual has AIDS or an AIDS related condition.

D. It shall be unlawful for a labor organization to fail or refuse to include in its membership or to otherwise discriminate against any individual, to limit, segregate, or classify its membership, or to classify or fail or refuse to refer for employment, any individual in any way which would deprive or tend to deprive such individual of employment opportunities, or to otherwise adversely affect an individual's status as an employee or as an applicant for employment because, in whole or in part, the individual has AIDS or an AIDS related condition.

E. It shall be unlawful for an employer, an employment agency or labor organization to discriminate against any individual in admission to, or employment in, any program established to provide apprenticeship, or other training or retraining, including any on-the-job training program, because, in whole or in part, the individual has AIDS or an AIDS related condition.

F. Nothing contained in this Section shall be deemed to prohibit selection, rejection, or termination based upon a bona fide occupational qualification. In any action brought under this Chapter, if a party asserts that any otherwise unlawful practice is justified as a bona fide occupational qualification, that party shall have the burden of proving: (1) that the discrimination is in fact a necessary result of a bona fide occupational qualification; and (2) that there exists no less discriminatory means of satisfying the occupational qualifications.

G. Nothing contained in this Chapter shall make it unlawful for an employer to observe the conditions of a bona fide employee benefit system, provided such system or plan is not a subterfuge to evade the purposes of this Chapter. No such system shall provide an excuse for failure to hire any individual.

H. No part of this Section shall apply to the employment of individuals to perform services in the place of residence of the employer. (Ord. C-6635 § 1 (part), 1989)

8.94.030 Housing and other real estate transactions.

A. It shall be unlawful for any person to interrupt, terminate, or fail or refuse to initiate or conduct any transaction in real property, including but not limited to the rental thereof, to require different terms for such transaction, to include in the terms or conditions of a transaction in real property any clause, condition or restriction, or to falsely represent that an interest in real property is not available for transaction because, in whole or in part, the individual has AIDS or an AIDS related condition.

B. Nothing in this Chapter shall be construed to apply to the rental or leasing of any housing unit in which the owner or lessor or any member of his or her family occupies all or a portion of the same living unit in common with the prospective tenant. (Ord. C-6635 § 1 (part), 1989)

8.94.040 Business establishments.

It shall be unlawful for any person to deny any individual the full and equal enjoyment of the goods, services, facilities, privileges, advantages, and accommodations of any business establishment because, in whole or in part, the individual has AIDS or an AIDS related condition. (Ord. C-6635 § 1 (part), 1989)

8.94.050 City facilities and services.

Notwithstanding any other provision of this Chapter, it shall be an unlawful practice for any person to deny any person the full and equal enjoyment of, or to impose different terms and conditions on the availability of: (1) use of any City facility or City service because, in whole or in part, the individual has AIDS or an AIDS related condition; or (2) any service, program or facility wholly or partially funded or otherwise supported by the City because, in whole or in part, the individual has AIDS or an AIDS related condition. This Section shall not apply to any facility, service or program which does not receive any assistance from the City which is not provided to the public generally. (Ord. C-6635 § 1 (part), 1989)

8.94.060 Contracts to include nondiscrimination provisions.

Notwithstanding any other provision of this Chapter, all contracting agencies of the City, or any department thereof, acting for or on the behalf of the City, shall include in all contracts, franchises, leases, concessions or other agreements involving real or personal property, hereafter negotiated, let, awarded, granted, renegotiated, extended or renewed, in any manner or as to any portion thereof, a provision obligating the contractor, franchisee, lessee, concessionaire, or other party of said agreement not to discriminate against persons having AIDS or an AIDS related condition. (Ord. C-6635 § 1 (part), 1989)

8.94.070 Advertising.

It shall be unlawful for any person to make, print, publish, advertise, or disseminate in any way any notice, statement or advertisement with respect to any of the acts mentioned in this Chapter, which indicates an intent to engage in any unlawful practice as set forth in this Chapter. (Ord. C-6635 § 1 (part), 1989)

8.94.080 Retaliation.

It shall be unlawful for any person to do any of the acts prohibited in this Chapter or to retaliate against a person because a person: (1) has opposed any act or practice made unlawful by this Chapter; or (2) has supported this Chapter and its enforcement; or (3) has testified, assisted or participated in any way in any investigation, proceeding, or litigation under this Chapter. (Ord. C-6635 § 1 (part), 1989)

8.94.090 Liability.

Any person who violates any of the provisions of this Chapter or who aids in the violation of any provisions of this Chapter, shall be liable for, and the court shall award to any individual whose rights are violated, actual damages, Attorney's fees and costs. In addition, the court may award punitive damages in the sum of five hundred dollars ($500.00) or such greater sum as may be provided. (Ord. C-6635 § 1 (part), 1989)

8.94.100 Enforcement.

A. Civil Action. Any aggrieved person may enforce the provisions of this Chapter by means of a civil action.

B. Injunction. Any person who commits, or proposes to commit, an act in violation of this Chapter may be enjoined therefrom by any court of competent jurisdiction. An action for injunction under this Subsection may be brought by any aggrieved person, by the City Attorney, or by any person or entity which will fairly and adequately represent the interests of the protected class.

C. Survival of Cause of Action. Any cause of action authorized hereunder shall survive the death of the person alleging discrimination and may be pursued in the name of the estate of the deceased person. (Ord. C-6635 § 1 (part), 1989)

8.94.110 Limitation on action.

Actions under this Chapter must be filed within one (1) year of the alleged discriminatory acts. (Ord. C-6635 § 1 (part), 1989)

8.94.120 Preemption.

This Chapter shall not apply to any act of discrimination to the extent that regulation of such act is preempted by State or Federal law. (Ord. C-6635 § 1 (part), 1989)

8.94.130 Exceptions.

A. No part of this Chapter shall apply to any bona fide religious organization.

B. No part of this Chapter shall apply where a course of conduct is pursued which is necessary to protect the health or safety of the general public.

1. Burden of Proof. In any action brought under this Chapter, if a party asserts that an otherwise unlawful discriminatory practice is justified as necessary to protect the health or safety of the general public, that party shall have the burden of proving: (a) that the discrimination is in fact a necessary result of a necessary course of conduct pursued to protect the health or safety of the general public; and (b) that there exists no less discriminatory means of satisfying the necessary protection of the health or safety of the general public.

2. Compliance with Department of Health and Human Services Guidelines. Within the meaning of this Section a practice is deemed necessary to protect the health or safety of the general public if that practice is consistent with the United States Department of Health and Human Services Guidelines entitled "Recommendations for Preventing Transmission of Infection with Human T-Lymphotropic Virus Type 111, Lymphadenopathy—Associated Virus in the Workplace", published in November, 1985, and any supplemental guidelines as they may be issued. (Ord. C-6635 § 1 (part), 1989)

8.94.140 Severability.

If any part or provision of this Chapter or the application thereof to any person or circumstance is held invalid, the remainder of the Chapter, including the application of such part or provision to other persons or circumstances, shall not be affected thereby and shall continue in full force and effect. To this end, the provisions of this Chapter are severable. (Ord. C-6635 § 1 (part), 1989)

CHAPTER 8.95 DOMESTIC PARTNERSHIP REGISTRATION

8.95.010 Definition.

"Domestic partners" means two adults who have chosen to share one another's lives in an intimate and committed relationship of mutual caring. (Ord. C-7460 § 1, 1997)

8.95.020 Domestic partnership.

A domestic partnership shall exist between two (2) persons if all of the following are true:

A. They reside together. (Reside together means that two (2) people share the same place to live. It is not necessary that the legal right to possession be in both of their names. Two (2) people may reside together even if one (1) or both have additional places to live. Domestic partners do not cease to reside together if one (1) leaves the shared place but intends to return.)

B. Neither is legally married or a member of another domestic partnership.

C. They are not related by blood such that would bar marriage in the State of California.

D. They share the common necessities of life and consider themselves responsible for each other's welfare.

E. They are eighteen (18) years of age or older.

F. They have filed a Statement of Domestic Partnership as described in this Chapter. (Ord. C-7460 § 1, 1997)

8.95.030 Statement of Domestic Partnership.

Domestic partners shall make an official record of their domestic partnership by completing and filing with the City Clerk a Statement of Domestic Partnership as provided by the City Clerk in substantially the following form:

"STATEMENT OF DOMESTIC PARTNERSHIP

WE, THE UNDERSIGNED, DO DECLARE THAT:

1. We live together.
2. Neither of us is legally married or a member of another domestic partnership.
3. We are not related by blood.
4. We share the common necessities of life and we are responsible for each other's welfare.
5. We are both 18 years of age or older.
6. We agree to notify the City of the termination of our domestic partnership agreement.
7. (Optional) We are each other's domestic partner and declare under penalty of perjury under the laws of the State of California that the statements above are true and correct.

Executed on _____, 19____, at _____, California.

Signed;_____

Print Name_____

Address_____"

Such form shall be signed under penalty of perjury by both domestic partners and either or both partner(s) shall file it with the City Clerk. (Ord. C-7460 § 1, 1997)

8.95.040 Termination of domestic partnership.

A domestic partnership shall be deemed terminated by either:

A. The death of either domestic partner; or

B. The filing with the City Clerk of a Notice of Termination of Domestic Partnership in the following form:

"NOTICE OF TERMINATION OF A DOMESTIC PARTNERSHIP

THE UNDERSIGNED, DO/DOES DECLARE THAT:

1. _____ (Name of the individual as shown on Statement of Domestic Partnership) and I are no longer domestic partners, and;
2. I mailed my former domestic partner a copy of this notice at _____ on _____, 19____.

I declare under penalty of perjury under the laws of the State of California that the statements above are true and correct.

Executed on _____, 19____, at _____, California.

Signed_____

Print Name_____

Address_____

Phone_____"

(Ord. C-7460 § 1, 1997)

8.95.050 Maintenance of records.

The City Clerk shall maintain adequate records of statements of domestic partnerships or notices of termination which have been created or terminated by the domestic partners. (Ord. C-7460 § 1, 1997)

8.95.060 Fees.

The City Clerk shall charge a fee for the filing of the statement of domestic partnership, which fee shall be determined by resolution of the City Council. Payment of this fee entitles the person(s) filing a declaration on behalf of the domestic partnership to have two (2) copies of the declaration certified by the City Clerk. Certification of additional copies of the statement of domestic partnership or any copies of the notice of termination of domestic partnership shall cost an amount per copy to be determined by resolution of the City Council. (Ord. C-7460 § 1, 1997)

8.95.070 Civil actions.

Any person defrauded by a false statement contained in a statement of domestic partnership or notice of termination may bring a civil action for fraud to recover his or her losses. (Ord. C-7460 § 1, 1997)

8.95.080 Retaliation.

It shall be unlawful for any person or entity to discriminate against any person who seeks the benefits of this Chapter or who assists someone in obtaining the benefits of this Chapter. (Ord. C-7460 § 1, 1997)

8.95.090 Healthcare facilities visitation rights.

All hospitals, convalescent care facilities, residential care facilities, hospices and other long-term and short-term care facilities shall allow a domestic partner to visit, at the discretion of the patient, unless all visitors are prohibited.

Proof of such domestic partnership shall be in substantially the form provided by the City Clerk. Any facility which requires a declaration of proof of domestic partnership shall accept, but may not require anyone to submit, a copy of a statement of domestic partnership which has been filed with the City Clerk. (Ord. C-7460 § 1, 1997)

8.95.100 Jail visitation rights.

City jails shall allow a domestic partner to visit an inmate unless: (a) the applicable rules prohibit all visitors, or (b) the Police Department decides that a particular visitor is a threat to the security of the jail. (Ord. C-7460 § 1, 1997)

8.95.110 Durable power of Attorney.

At the time of filing of a statement of domestic partnership, the individuals might consider a durable power of Attorney for:

A. Healthcare, provided that any such document complies with applicable California law;

B. Any authorized purposes, including, but not limited to, the disposition of personal effects at the time of death, provided that any such document complies with applicable California law. (Ord. C-7460 § 1, 1997)

8.95.120 Limited effect.

This Chapter is not intended to make the California Uniform Partnership Act (Corporations Code section 15001 et seq.) applicable to domestic partnerships. (Ord. C-7460 § 1, 1997)

CHAPTER 8.96 STORMWATER AND RUNOFF POLLUTION CONTROL

8.96.010 Title.

This Chapter shall be known as the "Stormwater and Runoff Pollution Control Ordinance of the City of Long Beach" and may be referred to as such. (ORD-15-0029 § 1, 2015)

8.96.020 Statutory authority.

The provisions of the Ordinance codified in this Chapter are adopted pursuant to the Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, 33 U.S.C.§ 1251 et seq; the Porter Cologne Act (California Water Code § 13000 et seq.), the regulations and stormwater permits issued thereunder, and any

other law relating directly or indirectly to stormwater discharge, or which may be violated by stormwater discharge or non-stormwater discharge to City storm drains or to receiving waters. (ORD-15-0029 § 1, 2015)

8.96.030 Purpose and intent.

A. The purpose of this Chapter is to protect and improve water quality of receiving waters by:

1. Prohibiting illicit discharges to the municipal stormwater system;

2. Eliminating illicit connections to the municipal stormwater system;

3. Eliminating spillage, dumping, and disposal of pollutant materials into the municipal stormwater system;

4. Reducing pollutant loads in stormwater and urban runoff from land uses and activities identified in the Municipal NPDES Permit.

B. The intent of this Chapter is to enhance and protect the water quality of the receiving waters of the United States in a manner that is consistent with the Clean Water Act and acts amendatory thereof or supplementary thereto, to applicable implementing regulations and the Municipal NPDES Permit and any amendment, revision, or reissuance thereof. (ORD-15-0029 § 1, 2015)

8.96.040 Definitions.

For the purpose of provisions of this Chapter concerning water quality hereinafter set forth, the following words and phrases shall be construed to have the meanings set forth, unless it is apparent from the context that a different meaning is intended. If the definition of any term contained in this section conflicts with the definition of the same term in the current Municipal NPDES Permit, then the definition contained in the Municipal NPDES Permit shall control.

A. "Best Management Practice" or "BMP" shall mean practices or physical devices or systems designed to prevent or reduce pollutant loading from stormwater or non-stormwater discharges to receiving waters.

B. "Clean Water Act" or "CWA" shall mean the Federal Water Pollution Control Act as amended, (33 U.S.C. 1251 et seq.).

C. "Construction General Permit" or "CGP" shall mean General Permit for Storm Water Discharges Associated with Construction and Land Disturbance Activities. General NPDES permit issued by the State Water Board, which authorizes the discharge of stormwater from construction activities under certain conditions.

D. "Director" shall mean the Director of Public Works of the City of Long Beach, the Director of Environmental Planning of the Port of Long Beach, the Director of Development Services of the City of Long Beach or their duly authorized designee.

E. "Executive Officer" shall mean Executive Officer of the California Regional Water Quality Control Board, Los Angeles.

F. "Good Housekeeping Practice" shall mean a best management practice related to the transfer, storage, use, or cleanup of materials performed in a regular manner that minimizes the discharge of pollutants to the storm drain system and/or receiving waters.

G. "Illicit Connection" shall mean any man-made conveyance that is connected to the storm drain system without a permit, excluding roof drains and other similar type connections. Examples include channels, pipelines, conduits, inlets, or outlets that are connected directly to the storm drain system.

H. "Illicit Discharge" shall mean any discharge into the MS4 that is prohibited under local, state, or federal statutes, ordinances, codes, or regulations. The term illicit discharge includes any non-stormwater discharge, except authorized non-stormwater discharges; conditionally exempt non-stormwater discharges; and non-stormwater discharges resulting from natural flows specifically identified in the Municipal NPDES Permit.

I. "Industrial Activity" shall mean activities related to or involving manufacturing, processing or material storage at an industrial facility, including activities described in 40 Code of Federal

Regulations Section 122.26(b)(14). Industrial activity may be subject to Stormwater Permit requirements.

J. "Low Impact Development" or "LID" shall mean the implementation of systems and practices that use or mimic natural processes to: 1) infiltrate and recharge, 2) evapotranspire, and/or 3) harvest and use precipitation near to where it falls to earth.

K. "Industrial General Permit" or "IGP" shall mean the General Permit for Storm Water Discharges Associated with Industrial Activities. General NPDES permit issued by the State Water Board, which authorizes the discharge of stormwater from certain industrial activities under certain conditions.

L. "Municipal NPDES Permit" shall mean the Municipal Separate Storm Sewer System (MS4) permit issued by the most recent order of the California Regional Water Quality Control Board, Los Angeles Region, to which the City is subject.

M. "Municipal Separate Storm Sewer System" or "MS4" shall mean those facilities within the City by which stormwater discharge is conveyed to waters of the United States, including but not limited to flood control channels, roads with drainage systems, alleys, streets, catch basins, grates, inlets, curbs, gutters, ditches, storm drains, canals, pipes, and fabricated and natural channels.

N. "Non-stormwater Discharge" shall mean any discharge to the storm drain system and/or receiving waters that is not composed entirely of stormwater.

O. "National Pollutant Discharge Elimination System" or "NPDES" shall mean the national program for issuing, modifying, revoking and reissuing, terminating, monitoring and enforcing permits, and imposing and enforcing pretreatment requirements, under CWA §§ 307, 402, 318, and 405. The term includes an "approved program."

P. "Owner" as applied to a building or real property shall mean any part owner, joint owner, tenant in common, tenant in partnership, joint tenant or tenant by the entirety of the whole or part of such building or real property.

Q. "Person" shall mean within the context of this Chapter, any natural person, firm, association, organization, partnership, business trust, corporation or company.

R. "Pollutant" shall mean the same as it is defined in California Water Code Section 13373 and includes, but is not limited to, garbage, debris, lawn clippings, leaves, fecal waste, biological waste sediment, sludge, manure, fertilizers, pesticides, oil, grease, gasoline, paints, solvents, cleaners, and any fluid or solid containing toxic or nontoxic chemicals, metals, including batteries.

S. "Receiving Waters" shall mean a "water of the United States" into which waste and/or pollutants are, or may be, discharged.

T. "Regional Board" shall mean the California Regional Water Quality Control Board, Los Angeles Region.

U. "Runoff" shall mean any runoff including stormwater and non-stormwater from a drainage area that reaches a receiving water body.

V. "State Board" or "SWRCB" shall mean the State Water Resources Control Board of the California Environmental Protection Agency.

W. "Stormwater Laws" shall mean the Clean Water Act (33 U.S.C. § 1251 et seq.), the Porter-Cologne Act (California Water Code § 13000 et seq.), the regulations and Stormwater Permits issued thereunder, and any other law relating directly or indirectly to stormwater discharge or non-stormwater discharge to the MS4 or receiving waters.

X. "Stormwater Permit" shall mean any applicable individual or general NPDES Permit or waste discharge requirements, waiver of waste discharge requirements or other authorization by a Governmental Authority issued pursuant to Stormwater Laws that pertain to stormwater runoff, as such may be amended, modified or revised from time to time. Stormwater Permit includes without limitation the General NPDES permits pertaining to stormwater discharge from industrial activity, construction activity and MS4s.

Y. "Stormwater" shall mean storm water runoff, snow melt runoff, and surface runoff and

drainage related to precipitation events (pursuant to 40 CFR § 122.26(b)(13); 55 Fed. Reg. 47990, 47995 (Nov. 16, 1990)).

Z. "Urban Runoff" shall mean surface water flow produced by non-stormwater resulting from residential, commercial and industrial activities. (ORD-22-0034 § 1, 2022; ORD-15-0029 § 1, 2015)

8.96.050 Illicit discharges and non-stormwater discharges.

A. No person shall cause or allow an illicit discharge to enter the municipal stormwater system.

B. Any person causing an illicit discharge to the MS4 may be required by the Director to pay for the cost of cleanup and remediation.

C. Any owner of any private property from which a non-stormwater discharge is observed may be required by the Director to pay for the cost of collecting and analyzing the discharge to determine if it is an illicit discharge.

D. Any person causing a discharge which exceeds a receiving water limitation shall be required to halt the discharge.

E. The following non-stormwater discharges are not considered illicit discharges:

1. Exempt discharges specified in the Municipal NPDES Permit, including flows from riparian habitats and wetlands, diverted stream flows authorized by the State Water Board or Los Angeles Water Board, natural springs, rising ground waters where groundwater seepage is not otherwise covered by a NPDES permit, uncontaminated groundwater infiltration; and discharges or flows from emergency firefighting activities.

2. Conditionally exempt non-stormwater discharges specified in the Municipal NPDES Permit. Such discharges include, but are not limited to, essential non-emergency firefighting activities, drinking water systems that are not otherwise regulated by another NPDES permit, dewatering of lakes, landscape irrigation, dechlorinated/dibrominated swimming pool, dewatering of decorative fountains, individual residential car washing, street/sidewalk wash water, or any other discharge that the Director deems not to be a significant source of pollution, such non-stormwater discharges shall be conducted in a manner not in violation of other provisions of this Chapter.

3. Non-stormwater discharges specifically allowed under a separate NPDES permit including, but not limited to, a general industrial stormwater activity permit or general construction stormwater activity permit. (ORD-22-0034 § 2, 2022; ORD-15-0029 § 1, 2015)

8.96.060 Illegal disposal/dumping.

No person shall intentionally place, litter, accumulate, maintain, discharge or cause to enter into the MS4 any pollutant or any foreign object such as batteries, tires, waste receptacles, yard debris, refuse, rubbish, food waste, chemicals, animal waste or oil cans. (ORD-15-0029 § 1, 2015)

8.96.070 Illicit connections.

A. No person shall maintain or intentionally use a connection that operates to convey an illicit discharge to the municipal stormwater system.

B. Upon discovery of an illicit connection, the person owning or operating such connection shall either remove it or render it incapable of conveying an illicit discharge.

C. If any person fails to eliminate an illicit connection after being called upon by the City to do so, the Director shall take appropriate measures to remove or disable the illicit connection and may recover such costs from the owner of such illicit connection. (ORD-15-0029 § 1, 2015)

8.96.080 Reduction of pollutants in runoff.

A. No person shall cause or threaten to cause the discharge of pollutants to the MS4 by exposing such pollutants to stormwater runoff.

B. The owner of parking lot surfaces, public or private, that are exposed to stormwater shall clean the parking lot surface as often as necessary to remove refuse, residual oil, grease or other pollutants that might otherwise be discharged to the MS4 by runoff. (ORD-22-0034 § 3, 2022; ORD-15-0029 § 1, 2015)

8.96.090 Control of pollutants from commercial facilities.

A. Certain categories of commercial facilities specified in the Municipal NPDES Permit or identified by the City as being significant contributors of pollution, shall implement BMPs prescribed by the Regional Board or its Executive Officer, through programs or actions made pursuant to the Municipal NPDES Permit, or by the Director, to minimize the discharge of pollutants to the MS4. These include source control BMPs identified in Table 6 of the Municipal NPDES Permit.

B. Certain categories of commercial facilities shall be inspected for pollution issues and BMP compliance with the most current Municipal NPDES Permit and approved Watershed Management Programs in accordance with the inspection schedule called for in the Municipal NPDES Permit or approved Watershed Management Program, or as often as necessary as determined by the City. (ORD-22-0034 § 4, 2022; ORD-15-0029 § 1, 2015)

8.96.100 Control of pollutants from industrial activities.

A. It shall be a violation of this Chapter for any industry in the City that is subject to waste discharge requirements specified in the Industrial General Permit, any revision made thereto, or a reissuance of such order, to operate without a NPDES Industrial General Permit.

B. Industries that require a NPDES Industrial General Permit shall retain on-site the following documents which evidence compliance with permit requirements:

1. A copy of the notice of intent for general permit to discharge stormwater associated with industrial activity;

2. A waste discharge identification number issued by the SWRCB; and

3. A stormwater pollution prevention plan and monitoring program plan.

C. Any industry in the City requiring a NPDES Industrial General Permit shall, upon reasonable request from a duly authorized officer of the City, provide any of the documents described in Subsection (B) of this Section.

D. Any industry, whether or not subject to the NPDES Industrial General Permit, may be inspected in accordance with a schedule established by the Municipal NPDES Permit or as often as necessary as determined by the City for the purpose of determining compliance with BMP requirements or to abate pollution issues.

E. Any industry, whether or not subject to the NPDES Industrial General Permit, shall implement BMPs prescribed by the Regional Board or its Executive Officer, through programs or actions made pursuant to the Municipal NPDES Permit, or by the Director, to minimize the discharge of pollutants to the MS4. These include source control BMPs identified in Table 6 of the Municipal NPDES Permit. (ORD-22-0034 § 5, 2022; ORD-15-0029 § 1, 2015)

8.96.110 Control of pollutants from construction activities requiring Construction General Permit coverage.

A. No person shall be granted a grading permit or shall commence or continue any construction activity in the City that causes the disturbance of one (1) acre or more of land by clearing, grading, or excavating without demonstrating to the City that such person has obtained a NPDES Construction General Permit from the SWRCB. NPDES construction activity does not include: 1) routine maintenance to maintain original line and grade; 2) hydraulic capacity; 3) the original purpose of the facility; or 4) emergency construction activities required to immediately protect the public health and safety.

B. Any person engaged in a construction activity in the City requiring a NPDES Construction General Permit shall retain at the construction site the following documents: 1) a copy of the notice of intent to comply with terms of the general permit to discharge water associated with construction activity; 2) a waste discharge identification number issued by the SWRCB; 3) a

stormwater pollution prevention plan and monitoring program plan for the construction activity requiring the construction permit; and 4) records of all inspections, compliance and noncompliance reports, evidence of self-inspection and good housekeeping practices.

C. Any person engaged in a construction activity in the City requiring a general construction stormwater activity permit shall, upon reasonable request from a duly authorized officer of the City, provide any of the documents described in Subsection (B) of this Section and shall retain said documents for at least three (3) years after completion of construction, or a Certificate of Occupancy, whichever is later. (ORD-22-0034 § 6, 2022; ORD-15-0029 § 1, 2015)

8.96.120 Control of pollutants from other construction activities.

A. No person shall be granted a grading permit for a construction project that is expected to cause a disturbance of less than one (1) acre of land by grading, clearing, and/or excavation without consenting to implement erosion and sediment control BMPs prescribed by the City to reduce pollutant discharges to the MS4 associated with construction activities. Such BMPs include those identified in Table 7 and Table 8 of the Municipal NPDES Permit.

B. No person shall be allowed to commence or continue any construction activity in the City that causes the disturbance of less than one (1) acre of land by grading, clearing, and/or excavating without implementing erosion and sediment control BMPs prescribed by the City. Such BMPs include those identified in Table 7 and Table 8 of the Municipal NPDES Permit. (ORD-22-0034 § 7, 2022; ORD-15-0029 § 1, 2015)

8.96.130 Control of pollutants from new development/redevelopment projects.

A. Applicability. Prior to the construction of any priority development project that is subject to the planning and development program requirements specified in the Municipal NPDES Permit, such project shall be evaluated by the City for its potential to discharge pollutants to the MS4 and shall reduce or prevent such discharge. Such project shall comply with the applicable requirements of the Municipal NPDES Permit and Low Impact Development (LID) standards and implemented in accordance with the manual developed by the City. The City's manual is hereby incorporated herein by this reference and shall be made available for review and use by the public.

B. Requirement. Once a priority development project has been evaluated for its potential to discharge pollutants to the MS4, the City shall require appropriate BMPs, both structural (i.e., LID) and nonstructural, to be implemented on a post-construction basis, and shall require a maintenance agreement to assure the proper performance of such BMPs.

C. Enforcement. The Director is authorized to require plan review of construction documents, issuance of applicable permits, conduct post-construction inspections, and request reports for the purpose of verifying proper operation and maintenance of structural BMPs.

D. Manual. The Director shall prepare, maintain, and update, as deemed necessary and appropriate, the NPDES Manual and shall include technical information and implementation parameters, alternative compliance for technical infeasibility, as well as other rules, requirements and procedures as the City deems necessary, for implementing the provisions of this Section and Chapter. (ORD-22-0034 § 8, 2022; ORD-15-0029 § 1, 2015)

8.96.140 Inspections and monitoring.

A. Inspections. Whenever necessary to make an inspection to assess or enforce compliance with this Ordinance, or whenever the Director reasonably believes a condition exists or potentially exists on a Premises which constitutes a violation of this Ordinance or Stormwater Laws, or poses a threat to water quality, the Director may enter such Premises at all reasonable times, upon reasonable notice, to inspect such Premises, review or copy records related to Stormwater or perform any duty imposed by this Ordinance. The Director

may seek assistance from any court of competent jurisdiction in obtaining such entry, as appropriate.

B. Imminent Threat. The Director shall be permitted to immediately enter any Premises and inspect, monitor, sample, and undertake other necessary actions when, in the Director's opinion, there exists an immediate threat to the health, safety or welfare of the public.

C. Observations and Sampling. During any inspection as provided herein, the Director may photographically record site observations and take samples and perform any testing deemed necessary to investigate or document site conditions, or otherwise support the site inspection or investigation. (ORD-15-0029 § 1, 2015)

8.96.150 Violations.

A. Acts in Violation of this Ordinance. It shall be a violation of this Ordinance for any person to:

1. Fail to comply with any provision of this Ordinance;

2. Conceal a violation of this Ordinance;

3. Fail to timely comply with a directive of the Director issued pursuant to this Ordinance;

4. Fail to comply with conditions of approval for construction projects; or

5. Cause or permit any discharge to the City storm drains or receiving waters that constitutes a nuisance, causes or contributes to a violation of applicable Stormwater Laws, including any such prohibitions, limitations, and requirements applicable to discharges from City Storm Drains conveying Stormwater discharge from such person's activities, Premises or facility to receiving waters.

B. Separate Violations. A separate violation shall be deemed committed on each day during or on which a violation occurs or continues. A person who violates any provision of this Ordinance may also be in violation of Stormwater Laws and may be separately subject to the additional sanctions of such laws including civil and criminal penalties. The violation of any provision of this Chapter is hereby declared to be a nuisance, and may be abated by the City in accordance with its authority to abate nuisances.

C. The remedies listed in this Chapter are not exclusive of any other remedies available to the City under any applicable Federal, State or local law and it is within the discretion of the City to seek cumulative remedies.

D. The Director may issue notice of violation and administrative orders to any other person who has failed to comply with either a notice of violation or other administrative order an invoice for costs for reimbursement of the City's actual costs incurred in issuing and enforcement of any provision of this Chapter.

E. The Director may require that any person engaged in any activity and/or owning or operating any facility which may cause or contribute to stormwater pollution or contamination, illicit discharges and/or discharge of nonstormwater to the stormwater system, undertake such monitoring activities and/or analysis and furnish such reports as the officer may specify. The burden, including costs, of these activities, analysis and reports shall bear a reasonable relationship to the need for the monitoring, analysis and the benefits to be obtained.

F. The Director may prepare and update as appropriate from time to time, policies, procedures, specifications and other guidance to implement this Ordinance, City Stormwater programs or the requirements of Stormwater Laws. (ORD-15-0029 § 1, 2015)

8.96.160 Enforcement actions.

Whenever the Director finds or has reason to believe that a violation of this Ordinance has occurred or is occurring, the Director may take all appropriate action and pursue all available legal remedies to enforce this Ordinance, including, but not limited to, the following:

A. Notice of Violation ("NOV"). The Director may issue a written NOV describing the violation, requiring action, specifying the time period or deadline for such action, and notifying the alleged violator of his or her right to protest the

order as provided in Section 8.96.190 of this Ordinance. The written NOV may, at the Director's discretion, include one or more of the following:

1. An order to abate a nuisance or correct a violation, including immediate action to clean up any spill or abate any violation that poses an immediate threat to public health, safety or the environment. The Director may require abatement of uncontrolled sources of pollutants within thirty (30) calendar days of notification if such pollutants could pose an environmental threat. The Director may, as appropriate, require a spill, discharge or pollutant release cleaned up and abated within seventy-two (72) hours of notification. An order to abate and/or clean up shall set forth a deadline for completion, and shall further advise that, should the violator fail to abate or clean up by the established deadline, the work will be done by the City or a contractor designated by the Director and the expense thereof shall be charged to the violator pursuant to Section 8.96.160;

2. An order to construct, implement, operate, repair, maintain and/or replace source control or treatment BMPs;

3. An order to cease and desist specified discharges, practices, activities or operations within a specified time frame if pollutant sources or activities are not abated;

4. An order to investigate and/or eliminate illicit discharges or illicit connections;

5. An order to inspect and/or monitor. Monitoring may include sampling and analysis;

6. An order to prepare and/or submit documents or reports;

7. An order to reimburse costs, including administrative, abatement, remediation, sampling and analysis, legal and staff time costs; or

8. An order to undertake any other action to eliminate a violation.

B. Inspections. The City may perform inspections to confirm a person has addressed an NOV to the Director's satisfaction.

C. Notice of Penalty ("NOP"). The Director may issue a written NOP describing the violation and ordering the recipient to pay, within a specified period of time, a penalty as provided in Section 8.69.180 of this Ordinance. The NOP must notify the violator of his or her right to protest the penalty as provided in Section 8.96.190 of this Ordinance.

D. Extension of Time. If an extension of time is required to clean up or abate a spill, discharge or pollutant release, or take other action directed in an NOV or NOP, the Director may establish a new time frame and notify appropriate Governmental Authorities of such revised timeframe as may be required by Stormwater Laws.

E. Legal Action. Whenever any condition is caused or permitted to exist in violation of any of the provisions of this Ordinance that the Director determines is a threat to public health, safety, or the environment, and declares to be a nuisance, the Director may, in addition to the enforcement processes and penalties herein provided, commence legal actions and/or equitable proceedings in a court of competent jurisdiction to abate, enjoin, or otherwise compel the cessation of such nuisance or abatement of the nuisance at the violator's expense. If the City prevails in such action and/or proceeding, it shall be entitled to recover costs, attorneys' fees, and costs of City's attorneys and staff in addition to any taxes, fees, assessments, penalties and interest.

F. Written Enforcement Notices. Any written notice provided under Section 8.96.160 shall be served personally by hand delivery, certified mail or email to the owner or occupant of the Premises where the violation occurred, or to the person believed responsible for the violation, or both.

G. Notice to State and Federal Authorities. Notwithstanding any other provision of this Ordinance, the Director may report known or suspected violations of Stormwater Laws, to Governmental Authorities. (ORD-15-0029 § 1, 2015)

8.96.170 Abatement.

A. Failure to Abate. If a nuisance has not been abated as required by the NOV, or if a spill or release has not been abated or cleaned up as required by the NOV the City may enter upon the subject Premises and abate and/or clean up the nuisance or spill at the expense of the City and the

City may recover the amount of such expense, including the cost of inspection, enforcement and correction to the full extent permitted by Government Code Section 54988, as it may be amended from time to time.

B. Emergency. When, in the Director's discretion, a condition exists which poses an immediate threat to the public health, safety or the environment, or an immediate threat of significant violation of Stormwater Laws affecting public health, safety or the environment, the Director may immediately enter the subject Premises and inspect or perform or cause to be performed work necessary to abate such danger or threat or to clean-up a release.

C. Reimbursement. The costs of abatement or clean-up performed by the City shall be fully reimbursed by the premises owner, occupant and/or responsible person as appropriate. Any relief obtained under this Section 8.69.170 shall not prevent the City from seeking other and further relief authorized under this Ordinance, other applicable Laws or any agreement with the City. Failure to reimburse the City within a reasonable time shall constitute a violation of this Ordinance. (ORD-15-0029 § 1, 2015)

8.96.180 Penalties.

A. Penalties. In addition to all other costs, a person who violates or fails to comply with a NOV or any provision of this Ordinance shall, upon written NOP as provided in Section 8.69.160(C) above, be subject to a penalty of up to and including Five Hundred Dollars ($500.00) per day for each violation, as such amount may be modified from time to time in the Municipal Code of the City.

B. Penalty Alternative. In lieu of enforcement proceedings, penalties, and remedies authorized by this Ordinance, the Director may require alternative compensatory actions, including but not limited to, monitoring, installing Stormwater Facilities, storm drain stenciling, attendance at compliance workshops, shore cleanup, and other measures as appropriate in the Director's discretion.

C. Revocation of Authorizations. The Director, may, in his/her discretion, revoke or modify City authorizations, terminate any tenancy agreement or right of occupancy of City Premises, or revoke or modify any license, authorization or other privilege conferred by the City, for significant or chronic violation of Stormwater Laws. (ORD-15-0029 § 1, 2015)

8.96.190 Appeal.

A. Filing a Protest. Any person named in an NOV or NOP may protest such order or penalty or attorneys' fees and costs by sending by certified mail or hand delivering to the Director's office a written request for review within twenty (20) calendar days of receipt of such NOV or NOP. Such protest shall specify all reasons why the order or penalty or assessment of attorneys' fees should be rescinded or modified.

B. Review and Decision. Within twenty (20) calendar days of receipt of a protest, the Director shall send a written decision by certified mail to the person filing such protest. The Director's decision shall be final, unless, within ten (10) calendar days of receipt of such decision, the person requests in writing, by certified mail or hand delivery, that a hearing be held on the matter.

C. Hearing. Within ten (10) calendar days of receiving a request for a hearing, the Director shall send a written notice of the date and time of a public hearing to the requesting person. At any such hearing, the requesting person may attend, give testimony, and present evidence. The issues addressed at the hearing shall be limited to those specifically raised in the hearing request. The hearing is an administrative process, not a criminal proceeding or a civil court of law proceeding. Costs of transcription of any testimony taken shall be borne by the person requesting transcription. The Director may affirm, modify or reverse any aspect of the written notice under review. The Director shall issue a final decision within twenty (20) calendar days of the hearing.

D. Liens. Notwithstanding any other provision of this Ordinance to the contrary, the costs incurred by the City in the abatement of a viola-

tion or nuisance may be placed against any privately owned and affected property as either a nuisance abatement lien or a special assessment lien pursuant to Government Code Section 38771 et seq., as amended from time-to-time or a lien pursuant to Government Code Section 54988, as amended from time to time. The City may enforce a lien under this Ordinance in any manner permitted by Law, including filing a civil action to either foreclose on its liens or to obtain a money judgment or both, or pursuing nonjudicial foreclosure. The City may elect, upon thirty (30) calendar days written notice to all known and record owners of the privately owned and affected Premises, to convert any nuisance abatement lien authorized by this Ordinance to a special assessment lien, or vice versa. Costs recoverable under this Ordinance shall include those categories of costs and fees set forth in Civil Code Section 3496, regardless of the type of nuisance involved. (ORD-15-0029 § 1, 2015)

8.96.200 Remedies not exclusive.

The remedies provided for in this Ordinance shall be cumulative and not exclusive of any other remedies and shall not preclude the City from any other relief which otherwise is available. (ORD-15-0029 § 1, 2015)

8.96.210 Fees.

The City Council may establish fees recover costs for complying with the requirements of this Chapter, including, but not limited to, plan review fees, cleanup and abatement fees, and inspection fees, which may be fixed and established from time to time by the City Council by resolution. (ORD-22-0034 § 9, 2022; ORD-15-0029 § 1, 2015)

8.96.220 Compliance responsibility.

The standards set forth herein and promulgated pursuant to this Ordinance are minimum standards. Compliance with this Ordinance does not ensure compliance with Stormwater Laws. Any person subject to requirements of Stormwater Laws or Stormwater Permits shall be responsible for their compliance with Stormwater Laws or Stormwater Permits. (ORD-15-0029 § 1, 2015)

8.96.230 Multi-Agency agreements.

The City Council or as designated, the City Manager, may enter into interagency agreements with other owner/operators of the MS4 to control the contribution of pollutants from shared portions of the MS4. (ORD-15-0029 § 1, 2015)

8.96.240 Miscellaneous provisions.

A. Written Notice. Except as otherwise provided in this Ordinance or by the Director, any written notice or request provided under this Ordinance may be delivered by hand delivery, mail or email.

B. Conflict of Law. This Ordinance is not intended to interfere with, abrogate or annul any other ordinance, resolution rule, or regulation, statute, or other provision of Law. If any provision of this Ordinance imposes restrictions different from those imposed by any other City ordinance, resolution, rule, or regulation or other provision of Law, the provision that is more restrictive or imposes a higher protective standard for the City, human health, safety or the environment shall take precedence.

C. Liability of City. Persons subject to Stormwater Laws shall be solely responsible for compliance with such laws. The Director, including any City or Port official or employee, acting under authorization of this Ordinance, if acting in good faith and within the course and scope of his/her employment, shall not be liable for any damage that may accrue to persons or Premises as the result of or by reason of any act or omission occurring in the good faith discharge of the duties of employment. Neither the City nor any agent or employee thereof shall be liable for any injury or damage resulting from any person's reliance on this Ordinance or any administrative decision lawfully made thereunder.

D. Severability. The provisions of this Ordinance are hereby declared to be severable. If any provision, clause, sentence, or paragraph of this Ordinance or the application thereof to any person, establishment, or circumstances shall be held invalid, such invalidity shall not affect the other

provisions or application of this Ordinance. (ORD-15-0029 § 1, 2015)

CHAPTER 8.97 RESERVED*

CHAPTER 8.98 TEMPORARY PROHIBITION OF NO-FAULT NOTICES AND EVICTIONS

8.98.010 Purpose.

On October 8, 2019, Assembly Bill 1482 ("AB 1482"), the Tenant Protections Act of 2019, was passed to address a key cause of California's affordable housing crisis by preventing rent gouging and arbitrary evictions. AB 1482 becomes effective on January 1, 2020.

The City of Long Beach is experiencing a housing affordability crisis, which is driving homelessness and displacement of residents to an unprecedented scale. Approximately fifty-one percent (51%) the City's renters are rent burdened, paying over thirty percent (30%) of their income on rent. Approximately twenty-seven percent (27%) of renters are severely rent burdened, paying over fifty percent (50%) of their income on rent. No renter protections presently exist for the approximately 69,000 households in the City that will be covered by AB 1482 beginning on January 1, 2020.

Escalating real estate values provide an incentive to landlords to evict long-term, lower-income tenants, without cause, to raise rents and attract wealthier tenants, before AB 1482 becomes effective. Tenants have reported experiencing an increase of no-fault eviction notices and threats of eviction. Therefore, it is imperative that the City implement temporary strategies to keep people housed.

This Chapter will temporarily prohibit no-fault notices and evictions through December 31, 2019, for residential real property that will be covered by AB 1482 beginning on January 1, 2020. (ORD-19-0029(Emerg.) § 1, 2019)

***Editor's note**—ORD-19-0035(Emerg.) § 1, adopted Dec. 10, 2019, repealed Ch. 8.97 §§ 8.97.010—8.97.070 entitled "Tenant Relocation Assistance," which derived from ORD-19-0014 § 1, 2019.

provisions or application of this Ordinance. (ORD-15-0029 § 1, 2015)

CHAPTER 8.97 RESERVED*

CHAPTER 8.98 TEMPORARY PROHIBITION OF NO-FAULT NOTICES AND EVICTIONS

8.98.010 Purpose.

On October 8, 2019, Assembly Bill 1482 ("AB 1482"), the Tenant Protections Act of 2019, was passed to address a key cause of California's affordable housing crisis by preventing rent gouging and arbitrary evictions. AB 1482 becomes effective on January 1, 2020.

The City of Long Beach is experiencing a housing affordability crisis, which is driving homelessness and displacement of residents to an unprecedented scale. Approximately fifty-one percent (51%) the City's renters are rent burdened, paying over thirty percent (30%) of their income on rent. Approximately twenty-seven percent (27%) of renters are severely rent burdened, paying over fifty percent (50%) of their income on rent. No renter protections presently exist for the approximately 69,000 households in the City that will be covered by AB 1482 beginning on January 1, 2020.

Escalating real estate values provide an incentive to landlords to evict long-term, lower-income tenants, without cause, to raise rents and attract wealthier tenants, before AB 1482 becomes effective. Tenants have reported experiencing an increase of no-fault eviction notices and threats of eviction. Therefore, it is imperative that the City implement temporary strategies to keep people housed.

This Chapter will temporarily prohibit no-fault notices and evictions through December 31, 2019, for residential real property that will be covered by AB 1482 beginning on January 1, 2020. (ORD-19-0029(Emerg.) § 1, 2019)

***Editor's note**—ORD-19-0035(Emerg.) § 1, adopted Dec. 10, 2019, repealed Ch. 8.97 §§ 8.97.010—8.97.070 entitled "Tenant Relocation Assistance," which derived from ORD-19-0014 § 1, 2019.

8.98.020 Definitions.

The following words and phrases, whenever used in this Chapter, shall be construed as defined in this Section:

A. Owner. The term "owner" is any person, acting as principal or through an agent, offering residential real property for rent, and includes a predecessor in interest to the owner.

B. Residential real property. The term "residential real property" is any dwelling or unit that is intended or used for human habitation. (ORD-19-0029(Emerg.) § 1, 2019)

8.98.030 Prohibition on no fault notices and evictions.

A. Through December 31, 2019, the owner of residential rental property shall not issue a notice to terminate a lawful tenancy, or otherwise move to terminate a lawful tenancy, without at-fault just cause, unless the termination is required to comply with an order issued by a government agency or court necessitating vacating the residential real property or to comport with due process, federal, or state law, which shall be stated in the written notice of termination of tenancy. This prohibition shall also apply to an owner's action that constitutes constructive eviction under California law. An owner's failure to comply with this Chapter shall render any notice of termination of tenancy void. This Chapter may be asserted as an affirmative defense in an unlawful detainer action. An owner's failure to comply with this Chapter does not constitute a criminal offense.

B. At-fault just cause is the following:

1. Default in the payment of rent.

2. A breach of a material term of the lease, as described in paragraph (3) of Section 1161 of the California Code of Civil Procedure, including, but not limited to, violation of a provision of a lease after being issued a written notice to correct the violation.

3. Maintaining, committing, or permitting the maintenance or commission of a nuisance as described in paragraph (4) of Section 1161 of the California Code of Civil Procedure.

4. Criminal activity by the tenant on the residential real property, including any common areas, or any criminal activity or criminal threat, as defined in subdivision (a) of Section 422 of the California Penal Code, on or off the residential real property against the owner of the residential real property.

5. Assigning or subletting the premises in violation of the tenant's lease, as described in paragraph (4) of Section 1161 of the California Code of Civil Procedure.

6. The tenant's refusal to allow the owner to enter the residential real property as authorized by Sections 1101.5 and 1954 of the California Civil Code, and Sections 13113.7 and 17926.1 of the California Health and Safety Code.

7. Using the premises for an unlawful purpose as described in paragraph (4) of Section 1161 of the California Code of Civil Procedure.

8. The employee, agent, or licensee's failure to vacate after their termination as an employee, agent, or licensee as described in paragraph (1) of Section 1161 of the California Code of Civil Procedure.

9. When the tenant fails to deliver possession of the residential real property after providing the owner written notice as provided in Section 1946 of the California Civil Code of the tenant's intention to terminate the hiring of the real property, or makes a written offer to surrender that is accepted in writing by the owner, but fails to deliver possession at the time specified in the written notice as described in paragraph (5) of Section 1161 of the California Code of Civil Procedure.

10. Tenant received all or a portion of a relocation payment pursuant to Chapter 8.97 and tenant remains in possession of the unit after lease termination without having returned the entirety of the relocation payment received to landlord on or before the date which is ten (10) days after the lease terminated.

C. This Chapter shall not apply to any of the following residential real property or residential circumstances:

1. Transient and tourist hotel occupancy as defined in subdivision (b) of Section 1940 of the California Civil Code.

2. Housing accommodations in a nonprofit hospital, religious facility, extended care facility, licensed residential care facility for the elderly, as defined in Section 1569.2 of the Health and Safety Code, or an adult residential facility, as defined in Chapter 6 of Division 6 of Title 22 of the Manual of Policies and Procedures published by the State Department of Social Services.

3. Dormitories owned and operated by an institution of higher education or a kindergarten and grades 1 to 12, inclusive, school.

4. Housing accommodations in which the tenant shares bathroom or kitchen facilities with the owner who maintains their principal residence at the residential real property.

5. Single-family owner-occupied residences, including a residence in which the owner-occupant rents or leases no more than two (2) units or bedrooms, including, but not limited to, an accessory dwelling unit or a junior accessory dwelling unit.

6. A duplex in which the owner occupied one (1) of the units as the owner's principal place of residence at the beginning of the tenancy, so long as the owner continues in occupancy.

7. Housing that has been issued a certificate of occupancy within the previous fifteen (15) years.

8. Residential real property that is alienable separate from the title to any other dwelling unit, provided that the owner is not any of the following:

a. A real estate investment trust, as defined in Section 856 of the Internal Revenue Code.

b. A corporation.

c. A limited liability company in which at least one (1) member is a corporation.

9. Housing restricted by deed, regulatory restriction contained in an agreement with a government agency, or other recorded document as affordable housing for persons and families of very low, low, or moderate income, as defined in Section 50093 of the Health and Safety Code, or subject to an agreement that provides housing subsidies for affordable housing for persons and

families of very low, low, or moderate income, as defined in Section 50093 of the Health and Safety Code or comparable federal statutes.

10. Residential real property encumbered by enforceable loan covenants in existence prior to November 5, 2019, to the extent compliance with this Chapter would necessarily result in a breach of such covenants. (ORD-19-0029(Emerg.) § 1, 2019)

8.98.040 Application.

This Chapter shall apply to tenancies where the tenant remains in possession and the eviction lawsuit has not been adjudicated. (ORD-19-0029(Emerg.) § 1, 2019)

8.98.050 Severability.

If any provision of this Chapter is found to be unconstitutional or otherwise invalid by any court of competent jurisdiction, that invalidity shall not affect the remaining provisions of this Chapter which can be implemented without the invalid provisions, and to this end, the provisions of this article are declared to be severable. The City Council hereby declares that it would have adopted this Chapter and each provision thereof irrespective of whether any one or more provisions are found invalid, unconstitutional or otherwise unenforceable. (ORD-19-0029(Emerg.) § 1, 2019)

CHAPTER 8.99 JUST CAUSE FOR TERMINATION OF TENANCIES

8.99.010 Findings and purpose.

In accordance with California Civil Code Section 1946.2(i)(1)(B), the City Council finds that the provisions of this Chapter 8.99 regulating just cause terminations of tenancies are more protective than California Civil Code Section 1946.2 for the following reasons:

(a) The just cause for termination of a residential tenancy under this Chapter 8.99 is consistent with California Civil Code Section 1946.2.

(b) This Chapter 8.99 provides additional tenant protections that are not prohibited by any other provisions of applicable law. (ORD-24-0011(Emerg.) § 1, 2024; ORD-22-0006 § 1, 2022; ORD-20-0007(Emerg.) § 1, 2020)

8.99.020 Just cause termination of tenancy protections.

(a) Notwithstanding any other law, after a tenant has continuously and lawfully occupied a residential real property for 12 months, the owner of the residential real property shall not terminate the tenancy without just cause, which shall be stated in the written notice to terminate tenancy. If any additional adult tenants are added to the lease before an existing tenant has continuously and lawfully occupied the residential real property for 24 months, then this subdivision shall only apply if either of the following are satisfied:

(1) All of the tenants have continuously and lawfully occupied the residential real property for 12 months or more.

(2) One or more tenants have continuously and lawfully occupied the residential real property for 24 months or more.

(b) For purposes of this Chapter, "just cause" means either of the following:

(1) At-fault just cause, which means any of the following:

(A) Default in the payment of rent.

(B) A breach of a material term of the lease, as described in paragraph (3) of Section 1161 of the California Code of Civil Procedure, including, but not limited to, violation of a provision of the lease after being issued a written notice to correct the violation.

(C) Maintaining, committing, or permitting the maintenance or commission of a nuisance as described in paragraph (4) of Section 1161 of the California Code of Civil Procedure.

(D) Committing waste as described in paragraph (4) of Section 1161 of the California Code of Civil Procedure.

(E) The tenant had a written lease that terminated on or after January 1, 2020, or January 1, 2022, if the lease is for a tenancy in a mobile home, and after a written request or demand from the owner, the tenant has refused to execute a written

extension or renewal of the lease for an additional term of similar duration with similar provisions, provided that those terms do not violate this Chapter or any other provision of law.

(F) Criminal activity by the tenant on the residential real property, including any common areas, or any criminal activity or criminal threat, as defined in subdivision (a) of Section 422 of the California Penal Code, on or off the residential real property, that is directed at any owner or agent of the owner of the residential real property.

(G) Assigning or subletting the premises in violation of the tenant's lease, as described in paragraph (4) of Section 1161 of the California Code of Civil Procedure.

(H) The tenant's refusal to allow the owner to enter the residential real property as authorized by Sections 1101.5 and 1954 of the California Civil Code, and Sections 13113.7 and 17926.1 of the California Health and Safety Code.

(I) Using the premises for an unlawful purpose as described in paragraph (4) of Section 1161 of the California Code of Civil Procedure.

(J) The employee, agent, or licensee's failure to vacate after their termination as an employee, agent, or a licensee as described in paragraph (1) of Section 1161 of the California Code of Civil Procedure.

(K) When the tenant fails to deliver possession of the residential real property after providing the owner written notice as provided in Section 1946 of the California Civil Code of the tenant's intention to terminate the hiring of the real property, or makes a written offer to surrender that is accepted in writing by the landlord, but fails to deliver possession at the time specified in that written notice as described in paragraph (5) of Section 1161 of the California Code of Civil Procedure.

(2) No-fault just cause, which means any of the following:

(A) (i) Intent to occupy the residential real property by the owner or the owner's spouse, domestic partner, children, grandchildren, parents, or grandparents for a minimum of 12 continuous months as that person's primary residence.

(ii) For leases entered into on or after July 1, 2020, or July 1, 2022, if the lease is for a tenancy in a mobile home, clause (i) shall apply only if the tenant agrees, in writing, to the termination, or if a provision of the lease allows the owner to terminate the lease if the owner, or the owner's spouse, domestic partner, children, grandchildren, parents, or grandparents, unilaterally decides to occupy the residential real property. Addition of a provision allowing the owner to terminate the lease as described in this clause to a new or renewed rental agreement or fixed-term lease constitutes a similar provision for the purposes of subparagraph (E) of paragraph (1).

(iii) This subparagraph does not apply if the intended occupant occupies a rental unit on the property or if a vacancy of a similar unit already exists at the property.

(iv) The written notice terminating a tenancy for a just cause pursuant to this subparagraph shall contain the name or names and relationship to the owner of the intended occupant. The written notice shall additionally include notification that the tenant may request proof that the intended occupant is an owner or related to the owner as defined in subclause (II) of clause (viii). The proof shall be provided upon request and may include an operating agreement and other nonpublic documents.

(v) Clause (i) applies only if the intended occupant moves into the rental unit within 90 days after the tenant vacates and occupies the rental unit as a primary residence for at least 12 consecutive months.

(vi) (I) If the intended occupant fails to occupy the rental unit within 90 days after the tenant vacates or fails to occupy the rental unit as their primary residence for at least 12 consecutive months, the owner shall offer the unit to the tenant who vacated it at the same rent and lease terms in effect at the time the tenant vacated and shall reimburse the tenant for reasonable moving expenses incurred in excess of any relocation assistance that was paid to the tenant in connection with the written notice.

(II) If the intended occupant moves into the rental unit within 90 days after the tenant vacates, but dies before having occupied the rental unit as a

primary residence for 12 months, as required by clause (v), this will not be considered a failure to comply with this section or a material violation of this section by the owner as provided in subdivision (h).

(vii) For a new tenancy commenced during the time periods described in clause (v), the accommodations shall be offered and rented or leased at the lawful rent in effect at the time any notice of termination of tenancy is served.

(viii) As used in this subparagraph:

(I) "Intended occupant" means the owner of the residential real property or the owner's spouse, domestic partner, child, grandchild, parent, or grandparent, as described in clause (i).

(II) "Owner" means any of the following:

(ia) An owner who is a natural person that has at least a 25-percent recorded ownership interest in the property.

(ib) An owner who is a natural person who has any recorded ownership interest in the property if 100 percent of the recorded ownership is divided among owners who are related to each other as sibling, spouse, domestic partner, child, parent, grandparent, or grandchild.

(ic) An owner who is a natural person whose recorded interest in the property is owned through a limited liability company or partnership.

(III) For purposes of subclause (II), "natural person" includes any of the following:

(ia) A natural person who is a settlor or beneficiary of a family trust.

(ib) If the property is owned by a limited liability company or partnership, a natural person who is a beneficial owner with at least a 25-percent ownership interest in the property.

(IV) "Family trust" means a revocable living trust or irrevocable trust in which the settlors and beneficiaries of the trust are persons who are related to each other as sibling, spouse, domestic partner, child, parent, grandparent, or grandchild.

(V) "Beneficial owner" means a natural person or family trust for whom, directly or indirectly and through any contract arrangement, understanding, relationship, or otherwise, and any of the following applies:

(ia) The natural person exercises substantial control over a partnership or limited liability company.

(ib) The natural person owns 25 percent or more of the equity interest of a partnership or limited liability company.

(ic) The natural person receives substantial economic benefits from the assets of a partnership.

(B) Withdrawal of the residential real property from the rental market.

(C) (i) The owner complying with any of the following:

(I) An order issued by a government agency or court relating to habitability that necessitates vacating the residential real property.

(II) An order issued by a government agency or court to vacate the residential real property.

(III) A local ordinance that necessitates vacating the residential real property.

(ii) If it is determined by any government agency or court that the tenant is at fault for the condition or conditions triggering the order or need to vacate under clause (i), the tenant shall not be entitled to relocation assistance as outlined in paragraph (3) of subdivision (e).

(D) (i) Intent to demolish or to substantially remodel the residential real property.

(ii) For purposes of this subparagraph, "substantially remodel" means either of the following that cannot be reasonably accomplished in a safe manner that allows the tenant to remain living in the place and that requires the tenant to vacate the residential real property for at least 30 consecutive days:

(I) the replacement or substantial modification of any structural, electrical, plumbing, or mechanical system that requires a permit from a governmental agency.

(II) the abatement of hazardous materials, including lead-based paint, mold, or asbestos, in accordance with applicable federal, state, and local laws.

(iii) For purposes of this subparagraph, a tenant is not required to vacate the residential real property on any days where a tenant could continue living in the residential real property without violating health, safety, and habitability codes and laws. Cosmetic improvements alone, including painting, decorating, and minor repairs, or other work that can be performed safely without having the residential real property vacated, do not qualify as substantial rehabilitation.

(iv) A written notice terminating a tenancy for a just cause pursuant to this subparagraph shall include all of the following information:

(I) A statement informing the tenant of the owner's intent to demolish the property or substantially remodel the rental unit property.

(II) The following statement: "If the substantial remodel of your unit or demolition of the property as described in this notice of termination is not commenced or completed, the owner must offer you the opportunity to re-rent your unit with a rental agreement containing the same terms as your most recent rental agreement with the owner at the rental rate that was in effect at the time you vacated. You must notify the owner within thirty (30) days of receipt of the offer to re-rent of your acceptance or rejection of the offer, and, if accepted, you must reoccupy the unit within thirty (30) days of notifying the owner of your acceptance of the offer."

(III) A description of the substantial remodel to be completed, the approximate expected duration of the substantial remodel, or if the property is to be demolished, the expected date by which the property will be demolished, together with one of the following:

(ia) A copy of the permit or permits required to undertake the substantial remodel or demolition.

(ib) Only if a notice is issued pursuant to subclause (II) of clause (ii) and the remodel does not require any permit, a copy of the signed contract with the contractor hired by the owner to complete the substantial remodel, that reasonably details the work that will be undertaken to abate the hazardous materials as described in subclause (II) of clause (ii).

(IV) A notification that if the tenant is interested in reoccupying the rental unit following the substantial remodel, the tenant shall inform the owner of the tenant's interest in reoccupying the rental unit following the substantial remodel and provide to the owner the tenant's address, telephone number, and email address.

(c) Before an owner of residential real property issues a notice to terminate a tenancy for just cause that is a curable lease violation, the owner shall first give notice of the violation to the tenant with an opportunity to cure the violation pursuant to paragraph (3) of Section 1161 of the California Code of Civil Procedure. If the violation is not cured within the time period set forth in the notice, a three-day notice to quit without an opportunity to cure may thereafter be served to terminate the tenancy.

(d) Before an owner of residential real property issues a notice to terminate a tenancy for no-fault just cause described in subparagraph 2(D) of subdivision (b), the owner shall have obtained all necessary permits for the substantial remodel from all applicable governmental agencies, and in the case of a permit issued by the City, such permit issuance will be conditioned upon the owner providing a complete list of all tenants whose tenancies will be terminated in connection with the permitted work.

(e) (1) For a tenancy for which just cause is required to terminate the tenancy under subdivision (a), if an owner of residential real property issues a termination notice based on a no-fault just cause described in paragraph (2) of subdivision (b), the owner shall, regardless of the tenant's income, at the owner's option, do one of the following:

(A) Assist the tenant to relocate by providing a direct payment to the tenant as described in paragraph (3).

(B) Waive in writing the payment of rent for the final month(s) of the tenancy, prior to the rent becoming due.

(2) If an owner issues a notice to terminate a tenancy for no-fault just cause, the owner shall notify the tenant in the written termination notice

of the tenant's right to relocation assistance or rent waiver pursuant to this Chapter. If the owner elects to waive the rent for the final month(s), of the tenancy as provided in subparagraph (B) of paragraph (1), the notice shall state the amount of rent waived and that no rent is due for the final month(s) of the tenancy.

(3) (A) The amount of relocation assistance or rent waiver shall be equal to (i) in the case of a termination notice under subparagraph (2)(D) of subdivision (b), the greater of $4,500 or two months of the tenant's rent that was in effect when the owner issued the notice to terminate the tenancy, or (ii) in the case of all other no-fault just cause terminations, one month of the tenant's rent that was in effect when the owner issued the notice to terminate the tenancy. Any relocation assistance shall be provided within 15 calendar days of service of the notice.

(B) If a tenant fails to vacate after the expiration of the notice to terminate the tenancy, the actual amount of any relocation assistance or rent waiver provided pursuant to this subdivision shall be recoverable as damages in an action to recover possession.

(C) The relocation assistance or rent waiver required by this subdivision shall be credited against any other relocation assistance required by any other law.

(f) This Chapter shall not apply to the following types of residential real properties or residential circumstances:

(1) Transient and tourist hotel occupancy as defined in subdivision (b) of Section 1940 of the California Civil Code.

(2) Housing accommodations in a nonprofit hospital, religious facility, extended care facility, licensed residential care facility for the elderly, as defined in Section 1569.2 of the California Health and Safety Code, or an adult residential facility, as defined in Chapter 6 of Division 6 of Title 22 of the Manual of Policies and Procedures published by the California State Department of Social Services.

(3) Dormitories owned and operated by an institution of higher education or a kindergarten and grades 1 to 12, inclusive, school.

(4) Housing accommodations in which the tenant shares bathroom or kitchen facilities with the owner who maintains their principal residence at the residential real property.

(5) Single-family owner-occupied residences, including both of the following:

(A) a residence in which the owner-occupant rents or leases no more than two units or bedrooms, including, but not limited to, an accessory dwelling unit or a junior accessory dwelling unit.

(B) a mobile home.

(6) A property containing two separate dwelling units within a single structure in which the owner occupied one of the units as the owner's principal place of residence at the beginning of the tenancy, so long as the owner continues in occupancy, and neither unit is an accessory dwelling unit or a junior accessory dwelling unit.

(7) Housing that has been issued a certificate of occupancy within the previous 15 years, unless the housing is a mobile home.

(8) Residential real property, including a mobile home, that is alienable separate from the title to any other dwelling unit, provided that both of the following apply:

(A) The owner is not any of the following:

(i) A real estate investment trust, as defined in Section 856 of the Internal Revenue Code.

(ii) A corporation.

(iii) A limited liability company in which at least one member is a corporation.

(iv) Management of a mobile home park, as defined in Section 798.2 of the California Civil Code.

(B) (i) The tenants have been provided written notice that the residential property is exempt from this Chapter using the following statement:

"This property is not subject to the rent limits imposed by Section 1947.12 of the Civil Code and is not subject to the just cause requirements of Section 1946.2 of the Civil Code. This property meets the requirements of Sections 1947.12 (d)(5) and 1946.2 (e)(8) of the Civil Code and the owner is not any of the following: (1) a real estate investment trust, as defined by Section 856 of the Inter-

nal Revenue Code; (2) a corporation; or (3) a limited liability company in which at least one member is a corporation."

(ii) (I) Except as provided in subclause (II), for a tenancy existing before July 1, 2020, the notice required under clause (i) may, but is not required to, be provided in the rental agreement.

(II) For a tenancy in a mobile home existing before July 1, 2022, the notice required under clause (i) may, but is not required to, be provided in the rental agreement.

(iii) (I) Except as provided in subclause (II), for any tenancy commenced or renewed on or after July 1, 2020, the notice required under clause (i) must be provided in the rental agreement.

(II) For any tenancy in a mobile home commenced or renewed on or after July 1, 2022, the notice required under clause (i) shall be provided in the rental agreement.

(iv) Addition of a provision containing the notice required under clause (i) to any new or renewed rental agreement or fixed-term lease constitutes a similar provision for the purposes of subparagraph (E) of paragraph (1) of subdivision (b).

(9) Housing restricted by deed, regulatory restriction contained in an agreement with a government agency, or other recorded document as affordable housing for persons and families of very low, low, or moderate income, as defined in Section 50093 of the California Health and Safety Code, or subject to an agreement that provides housing subsidies for affordable housing for persons and families of very low, low, or moderate income, as defined in Section 50093 of the California Health and Safety Code or comparable federal statutes.

(g) An owner of residential real property subject to this Chapter shall provide notice to the tenant as follows:

(1) (A) Except as provided in subparagraph (B), for any tenancy commenced or renewed on or after July 1, 2020, as an addendum to the lease or rental agreement, or as a written notice signed by the tenant, with a copy provided to the tenant.

(B) For a tenancy in a mobile home commenced or renewed on or after July 1, 2022, as an addendum to the lease or rental agreement, or as a written notice signed by the tenant, with a copy provided to the tenant.

(2) (A) Except as provided in subparagraph (B), for a tenancy existing prior to July 1, 2020, by written notice to the tenant no later than August 1, 2020, or as an addendum to the lease or rental agreement.

(B) For a tenancy in a mobile home existing prior to July 1, 2022, by written notice to the tenant no later than August 1, 2022, or as an addendum to the lease or rental agreement.

(3) The notification or lease provision shall be in no less than 12-point type, and shall include the following:

"California law limits the amount your rent can be increased. See Section 1947.12 of the Civil Code for more information. California law also provides that after all of the tenants have continuously and lawfully occupied the property for 12 months or more or at least one of the tenants has continuously and lawfully occupied the property for 24 months or more, a landlord must provide a statement of cause in any notice to terminate a tenancy. See Section 1946.2 of the Civil Code for more information."

The provision of the notice shall be subject to Section 1632 of the California Civil Code.

(h) An owner's failure to comply with any provision of this Chapter shall render the written termination notice void.

(i) Any waiver of the rights under this Chapter shall be void as contrary to public policy.

(j) An owner who attempts to recover possession of a rental unit in material violation of this Chapter shall be liable to the tenant in a civil action for all of the following:

(1) Actual damages.

(2) Reasonable attorney's fees and costs.

(3) Upon a showing that the owner has acted willfully or with oppression, fraud, or malice, up to three times the actual damages. An award may also be entered for punitive damages for the benefit of the tenant against the owner.

(4) If such material violation is made in connection with an attempted recovery pursuant to

subparagraph 2(D) of subdivision (b), a civil penalty in an amount of up to fifteen thousand dollars ($15,000).

(k) For the purposes of this Chapter, the following definitions shall apply:

(1) "Owner" includes any person, acting as principal or through an agent, having the right to offer residential real property for rent, and includes a predecessor in interest to the owner.

(2) "Residential real property" means any dwelling or unit that is intended for human habitation, including any dwelling or unit in a mobile home park.

(3) "Tenancy" means the lawful occupation of residential real property and includes a lease or sublease.

(l) This Chapter shall not apply to a homeowner of a mobile home, as defined in Section 798.9 of the California Civil Code.

(m) This Chapter shall remain in effect only until January 1, 2030, and as of that date is repealed. (ORD-24-0011(Emerg.) § 1, 2024; ORD-22-0006 § 1, 2022; ORD-20-0007(Emerg.) § 1, 2020)

CHAPTER 8.100 TEMPORARY PROHIBITION OF EVICTIONS DUE TO COVID-19

8.100.010 Purpose.

In order to protect the public health and mitigate the economic impacts of the novel coronavirus and the COVID-19 disease resulting therefrom, this Chapter shall temporarily prohibit certain evictions as more particularly described herein. (ORD-20-0010(Emerg.) § 1, 2020)

8.100.020 Definitions.

The following words and phrases, whenever used in this Chapter, shall be construed as defined in this Section:

A. COVID-19. The term "COVID-19" shall mean the novel coronavirus SARS-CoV-2 and disease resulting therefrom.

B. Owner. The term "owner" shall mean any person or entity, acting as principal or as an agent, renting residential or commercial real property.

C. Pay-or-quit notice. The term "pay-or-quit notice" shall mean the notice to be delivered to a tenant resulting from non-payment of rent as required by, and in accordance with, California law, including without limitation Section 1161 et seq of the Code of Civil Procedure. (ORD-20-0010(Emerg.) § 1, 2020)

8.100.030 Prohibition on Evictions.

A. The owner of residential or commercial real property shall not take action to evict a residential or commercial tenancy if (1) the basis for the eviction is non-payment of rent which became due between March 4, 2020 and September 30, 2020, or a foreclosure, arising out of a substantial decrease in household or business income (including, but not limited to, a substantial decrease in household income caused by layoffs or a reduction in the number of compensable hours of work, or a substantial decrease in business income caused by a reduction in opening hours or consumer demand), or substantial out-of-pocket medical expenses; and (2) the decrease in such household or business income or such out-of-pocket medical expenses was caused by the COVID-19 pandemic, or by any local, state or federal government (including school districts) response to COVID-19, and is documented and communicated to the owner in accordance herewith. After May 31, 2020, the following commercial tenancies shall be excluded from the application of this Chapter: (1) tenants and sub-tenants which are multi-national companies, publicly-traded companies or which have more than five hundred (500) employees; (2) tenancies and sub-tenancies managed by the Airport; and (3) tenancies and sub-tenancies managed by the Harbor Department. Any such excluded commercial tenants which previously delayed rent in accordance with this Chapter shall repay the entirety of such rent on or before November 30, 2020 (without any associated late charges).

B. In order to take advantage of the protections included in subsection 8.100.030.A., a ten-

ant must do each of the following before the expiration of the pay-or-quit notice: (1) notify the owner that the tenant may not be able to make its rental payment (or portion thereof); and (2) provide documentation supporting and/or evidencing such substantial decrease in household or business income or out-of-pocket medical expenses. Notwithstanding the foregoing, a tenant which received a pay-or-quit notice served on or after March 4, 2020 but before March 25, 2020 shall provide the notification and documentation required by this subsection (B) prior to the final adjudication of the subject eviction proceedings.

C. Nothing in this Chapter shall relieve a tenant of the obligation to pay rent, nor restrict an owner's ability to recover rent due; provided, however, an owner may not recover late fees which would have otherwise been applicable to rental payments validly delayed and repaid in accordance with this Chapter. (ORD-20-0028(Emerg.) § 1, 2020; ORD-20-0020(Emerg.) § 1, 2020; ORD-20-0010(Emerg.) § 1, 2020)

8.100.040 Pay-or-Quit Notices.

Any pay-or-quit notices dated between March 25, 2020 and September 30, 2020 shall include the following language (or substantially similar): "The City of Long Beach has declared a state of emergency in response to COVID-19. If you cannot pay your rent due to a loss of income or medical expenses resulting from COVID-19, you need to notify and provide supporting documentation to [provide owner or agent contact information] immediately. You may qualify for protections against eviction and you may have a right to delay your rent payment and to repay such delayed rent over a six-month period". (ORD-20-0028(Emerg.) § 2, 2020; ORD-20-0020(Emerg.) § 2, 2020; ORD-20-0010(Emerg.) § 1, 2020)

8.100.050 Grace Period.

Tenants which are protected against eviction under this Chapter shall have until July 31, 2021 to pay all delayed rent (without any associated late charges); provided, however, that all of such delayed and unpaid rent shall become immediately payable should a tenant fail to make a regularly scheduled monthly rental payment after July 31, 2020, and such failure to make a regularly scheduled payment persists after the expiration of a pay-or-quit notice applicable thereto. (ORD-20-0020(Emerg.) § 3, 2020; ORD-20-0010 (Emerg.) § 1, 2020)

8.100.060 Affirmative Defense.

This Chapter may be asserted as an affirmative defense in an unlawful detainer action. (ORD-20-0010(Emerg.) § 1, 2020)

8.100.070 Application.

This Chapter shall apply retroactively to March 4, 2020, except to the extent a tenant has surrendered possession of its premises or an eviction lawsuit has been finally adjudicated, prior to March 25, 2020. (ORD-20-0010(Emerg.) § 1, 2020)

8.100.080 Severability.

If any provision of this Chapter is found to be unconstitutional or otherwise invalid by any court of competent jurisdiction, that invalidity shall not affect the remaining provisions of this Chapter which can be implemented without the invalid provisions, and to this end, the provisions of this article are declared to be severable. The City Council hereby declares that it would have adopted this Chapter and each provision hereof irrespective of whether any one or more provisions are found invalid, unconstitutional or otherwise unenforceable. (ORD-20-0010(Emerg.) § 1, 2020)

CHAPTER 8.101 TENANT HARASSMENT

8.101.010 Purpose.

The purpose of this Chapter is to deter harassing behavior by residential real property owners, to encourage such owners to follow the law and uphold their responsibility to provide habitable rental properties, and to give tenants legal recourse when they are subjected to harassment by owners. (ORD-20-0044(Emerg.) § 1, 2020)

8.101.020 Definitions.

The following words and phrases, whenever used in this Chapter, shall be construed as defined in this Section:

A. Owner. The term "owner" is any person, acting as principal or agent, offering a rental housing unit for rent, or any contractor or subcontractor performing work for the benefit of such person, or any representative of the foregoing.

B. Rental agreement. The term "rental agreement" means an agreement, oral, written, or implied, between an owner and a tenant for the use and/or occupancy of a rental housing unit.

C. Rental housing unit. The term "rental housing unit" is any dwelling or unit that is intended or used for human habitation.

D. Tenant. The term "tenant" shall mean any renter, tenant, subtenant, lessee, or sublessee of a rental housing unit. (ORD-20-0044(Emerg.) § 1, 2020)

8.101.030 Prohibition of tenant harassment.

No owner shall:

A. Interrupt, terminate, or fail to provide housing services required by a rental agreement or by Federal, State, County, or local housing, health, or safety laws, or threaten to do so, or violate or threaten to violate California Civil Code Section 789.3.

B. Acting in bad faith, (i) fail to timely perform repairs and maintenance required by a rental agreement or by Federal, State, County or local housing, health or safety laws; (ii) fail to exercise due diligence in completing such repairs once undertaken; (iii) fail to follow appropriate industry repair, containment, or remediation protocols designed to minimize exposure to noise, dust, lead, paint, mold, asbestos, or other building materials with potentially harmful health impacts; or (iv) conduct elective renovation or construction of a rental housing unit for the purpose of harassing a tenant.

C. Abuse the right of access into a rental housing unit as established by California Civil Code Section 1954 or other applicable law. Such abuse includes, without limitation, entries for inspections that are not related to necessary repairs or services; entries excessive in number; entries or demands for entry at times outside normal business hours; entries contrary to a tenant's reasonable request to change the date or time of entry; photographing or otherwise recording portions of a rental housing unit that are beyond the scope of a lawful entry or inspection; and misrepresenting the reasons for accessing a rental housing unit.

D. Influence or attempt to influence a tenant to vacate a rental housing unit through fraud, misrepresentation, intimidation or coercion, which shall include threatening to report a tenant to the United States Department of Homeland Security.

E. Threaten a tenant, by word or gesture, with physical harm, or abuse tenant with words, either orally or in writing, which are inherently likely to provoke an immediate violent reaction.

F. Violate any law which prohibits discrimination based on race, gender, sexual preference, sexual orientation, ethnic background, nationality, religion, age, parenthood, marriage, pregnancy, disability, human immunodeficiency virus (HIV)/acquired immune deficiency syndrome (AIDS), occupancy by a minor child, or source of income.

G. Take action to terminate any tenancy, including service of any notice to quit or other eviction notice, or bring any action to recover possession of a rental housing unit, based upon facts which owner has no reasonable cause to believe to be true or upon a legal theory which is untenable under the facts known to owner.

H. Provide false written or verbal information regarding any Federal, State, County or local tenant protections, including mischaracterizing the nature or effect of a notice to quit or other eviction notice. False information includes, without limitation, requesting or demanding a tenant: (i) sign a new lease not in the tenant's primary language if (a) lease negotiations were conducted in the tenant's primary language, (b) the existing lease is in the tenant's primary language, or (c) owner is otherwise aware that the new lease is not in tenant's primary language; or (ii) enter into a rent repayment plan to take advantage of tenant protection laws that do not require such plans.

I. Acting in bad faith, (i) refuse to acknowledge or accept receipt of a tenant's lawful rent payment as set forth in a rental agreement, by usual practice of the parties, or in a notice to pay rent or quit; (ii) refuse to cash or process a rent check or other form of acceptable rent payment for over thirty (30) days after it is tendered; or (iii) fail to maintain a current address for delivery of rent payments.

J. Acting in bad faith, (i) violate a tenant's right to privacy, including without limitation, by requesting information regarding residence or citizenship status, protected class status, or Social Security number, except for, in the case of Social Security number, for purposes of obtaining information for the qualifications for a tenancy; (ii) release such information except as required or authorized by law; or (iii) request or demand an unreasonable amount of information from tenant in response to a request for reasonable accommodation.

K. Acting in bad faith, communicate with a tenant in a language other than the tenant's primary language for the purpose of intimidating, confusing, deceiving or annoying the tenant.

L. Interfere with the right of tenants to organize as tenants and engage in concerted activities with other tenants for the purpose of mutual aid and protection; deny property access to tenant organizers, advocates, or representatives working with or on behalf of tenants living at a property; prevent tenant or tenant organization meetings in an appropriate space accessible to tenants under the terms of their rental agreement(s); or discourage distribution or posting in common areas of literature informing tenants of their rights.

M. Commit other repeated acts or omissions of such significance as to substantially interfere with or disturb the comfort, repose, peace or quiet of any person lawfully entitled to occupancy of a rental housing unit and that cause, are likely to cause, or are intended to cause any person lawfully entitled to occupancy of a rental housing unit to vacate such rental housing unit or to surrender or waive any rights in relation to such occupancy. (ORD-20-0049(Emerg.) § 1, 2020; ORD-20-0044(Emerg.) § 1, 2020)

8.101.040 Remedies and penalties.

A. If an owner violates the terms of this Chapter, an aggrieved tenant may institute a civil action for injunctive relief, direct money damages, and any other relief that the court deems appropriate, which such relief shall include a civil penalty of no less than Two Thousand Dollars ($2,000), and no more than Five Thousand Dollars ($5,000), per violation, at the discretion of the court. If the aggrieved tenant is older than sixty-five (65) or disabled, the court may award an additional civil penalty of up to Five Thousand Dollars ($5,000) per violation, at the discretion of the court.

B. The court may award reasonable attorneys' fees and costs to a tenant who prevails in any such action. The court may award reasonable attorneys' fees and costs to an owner who prevails in any such action if the court determines that the tenant's action was frivolous.

C. The above remedies are not exclusive and do not preclude any tenant from seeking other remedies or penalties provided by applicable law. (ORD-20-0044(Emerg.) § 1, 2020)

8.101.050 Severability.

If any provision of this Chapter is found to be unconstitutional or otherwise invalid by any court of competent jurisdiction, that invalidity shall not affect the remaining provisions of this Chapter which can be implemented without the invalid provisions, and to this end, the provisions of this article are declared to be severable. The City Council hereby declares that it would have adopted this Chapter and each provision thereof irrespective of whether any one or more provisions are found invalid, unconstitutional or otherwise unenforceable. (ORD-20-0044(Emerg.) § 1, 2020)

8.101.060 Lawful Evictions.

Nothing in this Chapter shall be construed as to prevent an owner from lawfully evicting a tenant pursuant to applicable State or local law. (ORD-20-0044(Emerg.) § 1, 2020)

CHAPTER 8.102 TEMPORARY PROHIBITION OF DEMOLITION AND SUBSTANTIAL NO-FAULT NOTICES AND EVICTIONS

8.102.010 Purpose.

On July 6, 2021, the Long Beach City Council directed the City Manager to undertake a study and prepare a report exploring the feasibility of, and costs associated with, establishing a renovation administration program in the City to ensure landlords can invest in renovation work without subjecting tenants to either untenantable housing conditions during renovation work or the forced permanent displacement of the tenant due to said renovation work. In advance of the presentation of the report to the Council and potential action taken by the Council as a result thereof, this Chapter will temporarily prohibit no-fault notices and evictions based on certain demolition or substantial remodel permits through March 17, 2022. (ORD-22-0007 § 1, 2022; ORD-21-0039(Emerg.) § 1, 2021; ORD-21-0022(Emerg.) § 1, 2021)

8.102.020 Definitions.

The following words and phrases, whenever used in this Chapter, shall be construed as defined in this Section:

A. Owner. The term "owner" is any person, acting as principal or through an agent, offering residential real property for rent, and includes a predecessor in interest to the owner.

B. Residential rental property. The term "residential rental property" is any dwelling or unit that is intended or used for human habitation and which is offered or is currently being utilized for rental purposes. (ORD-22-0007 § 1, 2022; ORD-21-0039(Emerg.) § 1, 2021; ORD-21-0022(Emerg.) § 1, 2021)

8.102.030 Prohibition on no fault demolition and/or substantial remodel notices and evictions.

Through March 17, 2022, the owner of residential rental property shall not issue a notice to terminate a lawful tenancy, or otherwise move to terminate a lawful tenancy, based upon: (i) a permit issued by the City of Long Beach on or after July 6, 2021; and (ii) otherwise on the authority provided by Section 8.99.020(b)(2)(D) of the Long Beach Municipal Code, unless the termination is required to comply with an order issued by a government agency or court requiring that the residential rental real property be vacated; or to comport with due process, federal, or state law, which situation or circumstance shall be stated with particularity in the written notice of termination of tenancy. This Chapter may be asserted as an affirmative defense by a tenant in any unlawful detainer action brought by an Owner against a tenant. Any notice issued in violation of this Chapter shall be null and void. This Chapter shall not apply to any termination notices issued on or after March 18, 2022. (ORD-22-0007 § 1, 2022; ORD-21-0039(Emerg.) § 1, 2021; ORD-21-0022(Emerg.) § 1, 2021)

8.102.040 Severability.

If any provision of this Chapter is found to be unconstitutional or otherwise invalid by any court of competent jurisdiction, that invalidity shall not affect the remaining provisions of this Chapter which can be implemented without the invalid provisions, and to this end, the provisions of this Chapter are declared to be severable. The City Council hereby declares that it would have adopted this Chapter and each provision thereof irrespective of whether any one or more provisions are found invalid, unconstitutional or otherwise unenforceable. (ORD-22-0007 § 1, 2022; ORD-21-0039(Emerg.) § 1, 2021; ORD-21-0022(Emerg.) § 1, 2021)

CHAPTER 8.110 RESERVED*

***Editor's note**—ORD-23-0013 § 1, adopted March 7, 2023, repealed Ch. 8.110 §§ 8.110.010—8.110.160 entitled "COVID-19 Paid Supplemental Sick Leave," and derived from ORD-20-0017(Emerg.) § 1, 2020.

CHAPTER 8.120 RESERVED*

*Editor's note—ORD-23-0014 § 1, adopted March 21, 2023, repealed Ch. 8.120 §§ 8.120.010—8.120.040 entitled "Temporary enforcement of Long Beach health orders related to COVID-19," and derived from: ORD-22-0003(Emerg.) §§ 1, 2, 2022; ORD-21-0029(Emerg.) §§ 1, 2, 2021; ORD-21-0003(Emerg.) §§ 1—4, 2021; ORD-20-0043(Emerg.) §§ 1, 2, 2020; ORD-20-0013(Emerg.) § 1, 2020.

Title 9

PUBLIC PEACE, MORALS AND WELFARE

Part I. General Provisions

Chapter 9.02 Definitions

9.02.010 Construction.
9.02.020 Alcoholic beverage.
9.02.030 Apartment.
9.02.040 Apartment house.
9.02.050 Auto and trailer park.
9.02.060 Auto court and resort.
9.02.070 Drive-in or take-out restaurant.
9.02.080 Hotel.
9.02.090 Public place.

Part II. Offenses by or Against Public Officers and Government

Chapter 9.08 Impersonating an Officer

9.08.010 Unauthorized police uniform.
9.08.020 False reports.

Part III. Offenses Against the Person

Chapter 9.14 Tort Claims

9.14.010 Solicitation prohibited.
9.14.020 Exception—Joint tort claimants.

Part IV. Offenses Against Public Decency

Chapter 9.16 Narcotics Related Nuisance Abatement

9.16.010 Purpose.
9.16.015 Additional enforcement remedies.
9.16.020 Definitions.
9.16.030 Narcotics nuisance abatement.
9.16.050 Severability.

Chapter 9.17 Unlawful Weapons or Ammunition on Real Property Abatement

9.17.010 Purpose.
9.17.015 Additional enforcement remedies.
9.17.020 Definitions.
9.17.030 Illegal weapons or ammunition on real property nuisance abatement.

9.17.050 Severability.

Chapter 9.20 Nudity

9.20.010 Waiters, waitresses and entertainers.
9.20.020 Exposure of female breasts.
9.20.030 Permitting violation.
9.20.040 Exception—Theatrical performances.
9.20.050 Misdemeanor to be nude in a public place or in a place open to the public view.

Chapter 9.22 Alcoholic Beverages

9.22.010 Public consumption—Prohibited.
9.22.020 Public consumption—Mixture prohibited.
9.22.030 Public consumption—Sale prohibited.
9.22.040 Public consumption—Permitting prohibited.
9.22.050 Licensing public area.
9.22.060 Beer, wine and champagne in certain public facilities.
9.22.070 Unlawful alcohol consumption.
9.22.075 Bather.
9.22.080 Marine league.

Chapter 9.24 Gambling

9.24.010 Prohibited games designated.
9.24.020 Violation—Nuisance.
9.24.030 Possession of machines prohibited.
9.24.040 Destruction of equipment.
9.24.050 Reserved.
9.24.060 False identification—Possession prohibited.
9.24.070 False identification—Making prohibited.
9.24.080 Identification card—Preparer designation.

Chapter 9.25 Public Excretion

9.25.010 Misdemeanor to urinate or defecate in public.

Part V. Offenses Against Public Peace

Chapter 9.30 Disorderly Conduct

9.30.010 Annoying people or acting as capper.
9.30.020 Public disrobing.
9.30.025 Misdemeanor to enter a public restroom designated for use by the opposite sex.
9.30.030 Public expectoration.

9.30.040 Unlawful assembly.
9.30.050 Obstructing public passage.
9.30.060 Lookouts for illegal acts.

Chapter 9.31 Loud Parties on Private Property

9.31.010 Loud noises prohibited.
9.31.020 Enforcement.
9.31.030 Second and subsequent responses.
9.31.040 Collection of costs.

Chapter 9.32 Drive-In Restaurants

9.32.010 Motor vehicle operation.
9.32.020 Blocking ingress or egress.
9.32.030 Alcoholic beverages.
9.32.040 Uninvited use of premises.
9.32.050 Exception—Peace officer.

Chapter 9.33 City Library Rules

9.33.010 Applicability of Chapter.
9.33.020 City Library rules.
9.33.030 City Library privileges suspension appeals.

Chapter 9.34 Circulating Petitions

9.34.010 Prohibited in certain public buildings.

Chapter 9.35 Aggressive Solicitation

9.35.010 Aggressive solicitation prohibited.
9.35.020 Prohibited locations.
9.35.030 Exception.
9.35.040 Penalty.
9.35.050 Severability.

Chapter 9.36 Loitering for Drug Activities or Graffiti

9.36.010 Loitering for drug activity.
9.36.020 Loitering for graffiti.

Chapter 9.37 Long Beach Nuisance Code

9.37.010 Purpose and intent.
9.37.020 Additional enforcement remedies.
9.37.030 City Manager/Administrative Abatement Officer.

9.37.040 Person/responsible person/party.
9.37.050 Abate/abatement.
9.37.060 Premises.
9.37.070 Service of notice.
9.37.080 Abatement of nuisance related activities or condition.
9.37.090 Nuisance defined.
9.37.100 Notification of nuisance and abatement thereof.
9.37.110 Notice of administrative penalty.
9.37.120 Administrative penalties.
9.37.130 Administrative costs.
9.37.140 Abatement by City Manager.
9.37.150 Record of administrative penalties and costs; cost of abatement; hearing.
9.37.160 Expenses and administrative penalties and costs a lien against the property.
9.37.170 Notice of lien.
9.37.180 Alternative method of collection.
9.37.190 Right of judicial review.

Part VI. Offenses Against Property

Chapter 9.38 Public Works Offices, Buildings and Yards

9.38.010 Purpose.
9.38.020 Defined.
9.38.030 Limitation of access and regulation of use.
9.38.040 Signs to be posted.
9.38.050 Certain acts unlawful.
9.38.060 Ejectment.

Chapter 9.40 Seizure, Impoundment and Forfeiture of Vehicles

9.40.010 Definitions.
9.40.020 Nuisance vehicles.
9.40.030 Seizure of vehicles.
9.40.040 Title to vest in the City of Long Beach.
9.40.050 Seizure, impoundment and notice.
9.40.060 Vehicles held as evidence.
9.40.070 Forfeiture.
9.40.080 Claim opposing forfeiture.
9.40.090 Vehicles not subject to forfeiture.
9.40.100 Disposal of vehicle and distribution of proceeds.

Chapter 9.42 Trespassing

9.42.010 Prohibited.
9.42.020 Purpose.
9.42.030 Definitions.
9.42.040 Property which may be posted.
9.42.050 Posting method.
9.42.060 Entering on posted property prohibited.
9.42.070 Sign destruction prohibited.
9.42.080 Loitering near posted property prohibited.
9.42.090 Exceptions.
9.42.100 Operating vehicles on private property prohibited.
9.42.110 Camping prohibited in certain areas—Exceptions.

Chapter 9.46 Flood Control Facilities

9.46.010 Use permit required.
9.46.020 Obstruction prohibited.

Part VII. Offenses by or Against Minors

Chapter 9.52 Firearms

9.52.010 Sale of ammunition prohibited.
9.52.020 Possession prohibited.

Chapter 9.54 Drug Paraphernalia

9.54.010 Allowing minors in sales room.
9.54.020 Minor presence in sales room.
9.54.030 Segregation and signposting of sales rooms.
9.54.040 Violation—Nuisance.

Chapter 9.56 Pressurized Paint Containers

9.56.010 Sale or purchase prohibited.
9.56.020 Possession restricted.
9.56.030 Possession prohibited in public parks and buildings.
9.56.040 Storage requirements.

Chapter 9.57 Marking Pens and Etching Tools

9.57.010 Sale or purchase prohibited.
9.57.020 Storage requirements.
9.57.030 Possession prohibited in streets and other public places.

Chapter 9.58 Loitering

9.58.010 Prohibition against juvenile being in public place between the hours of ten p.m. until six a.m. the following day.

9.58.020 Prohibition against juvenile being in public place between the hours of eight-thirty a.m. until one-thirty p.m.

Chapter 9.60 Regulation of Sexually Explicit Materials

9.60.010 Definitions.

9.60.020 Display to minors.

9.60.030 Display in separate room.

9.60.040 Exception.

9.60.050 Penalty.

9.60.060 Severability.

Chapter 9.61 Social Host Regulations

9.61.010 Purpose and intent.

9.61.020 Definitions.

9.61.030 Prohibition on hosting, permitting or allowing a gathering at which minors consume alcoholic beverages.

9.61.040 Recovery of response costs.

9.61.050 Penalty for violations.

9.61.060 Severability.

Part VIII. Weapons

Chapter 9.62 Firearms Discharge

9.62.010 Permit required.

Chapter 9.64 Prohibited Weapons

9.64.010 Use of whips, ticklers or throwing confetti.

9.64.020 Slingshots or catapults.

Part IX. Enforcement

Chapter 9.65 Administrative Citations and Penalties

9.65.010 Legislative findings and statement of purpose.

9.65.020 Definitions.

9.65.030 Weed abatement activity.

9.65.040 Inoperative vehicle activity.

9.65.050 Prohibited canopy structure.

9.65.060 Issuance of administrative citation.

9.65.070 Service procedures.
9.65.080 Contents of notice.
9.65.090 Satisfaction of administrative citation.
9.65.100 Appeal of administrative citation.
9.65.110 Appeal hardship waiver.
9.65.120 Hearing procedure.
9.65.130 Hearing Officer's decision.
9.65.140 Failure to pay fines.
9.65.150 Failure to remedy weed abatement activity.
9.65.160 Failure to remedy inoperative vehicle activity.
9.65.170 Appeal of lot cleaning and inoperative vehicle levy.
9.65.180 Dismissal of citation.
9.65.190 Right to judicial review.
9.65.200 Recovery of Code enforcement abatement costs.
9.65.210 Failure to remedy violations - recordation.

Chapter 9.66 Sex Offender Residency Restrictions

9.66.010 Definitions.
9.66.020 Sex offender prohibition - Single Family Dwellings.
9.66.030 Sex offender prohibitions - Duplex and Multi-family Dwellings.
9.66.040 Sex offender prohibition - Hotel/Motel/Inn Rooms.
9.66.050 Responsible party prohibition - Single Family Dwellings.
9.66.060 Responsible party prohibitions - Duplex and Multi-family Dwellings.
9.66.070 Responsible party prohibitions - Hotel/Motel/Inn.
9.66.080 Criminal penalties.
9.66.090 Criminal penalties do not satisfy administrative or civil actions.
9.66.110 Civil actions.

PART I. GENERAL PROVISIONS

CHAPTER 9.02 DEFINITIONS

9.02.010 Construction.

Unless the context otherwise requires, the definitions set forth in this Chapter govern the construction of this Title. (Prior code § 4110 (part))

9.02.020 Alcoholic beverage.

"Alcoholic beverage" means and includes alcohol, spirits, liquor, wine, beer, whiskey, and every liquid or solid containing alcohol, spirits, wine or beer and which contains one-half of one percent (0.5%) or more of alcohol by volume and which is fit for beverage purposes, either alone or when diluted, mixed, or combined with other substances. (Prior code § 4110 (h))

9.02.030 Apartment.

"Apartment" means a room or suite of rooms in an apartment house or dwelling occupied, or intended or designed for occupation, by one (1) family for living or sleeping purposes. (Prior code § 4110(c))

9.02.040 Apartment house.

"Apartment house" means any building occupied, or designed, built, or rented for occupation, by three (3) or more families, each living in a room or suite of rooms designed or intended for occupation by one (1) family for living or sleeping purpose and cooking within such building or structure. (Prior code § 4110(b))

9.02.050 Auto and trailer park.

"Auto and trailer park" means any area or tract of land where space is rented or held out for rent to two (2) or more owners or users of trailer coaches or tent campers furnishing their own camping equipment, or where free camping is permitted owners or users of trailer coaches or tent camping equipment for the purpose of securing their trade. (Prior code § 4110(e))

9.02.060 Auto court and resort.

"Auto court and resort" means any area, place, or tract of land where two (2) or more single-family dwellings, or a building containing two or more apartments designed, used, or intended wholly or in part for the accommodation of transients, are located and offered for hire, rent or lease by any person. (Prior code § 4110(d))

9.02.070 Drive-in or take-out restaurant.

A "drive-in or take-out restaurant" means any cafe, food establishment or public eating place where food or frozen dessert or beverage or drink is delivered to or served directly or sold to anyone for consumption on the premises at tables or stands in open or enclosed areas, or in any vehicle stopped, standing or parked upon the premises, or in or upon any street, alley, parking area, or grounds immediately adjacent to the premises or for consumption off of the premises. (Prior code § 4110(i))

9.02.080 Hotel.

"Hotel" means any structure, or any portion of a structure, including any lodginghouse, roominghouse, dormitory, turkish bath, bachelor hotel, studio hotel, public club or private club which is occupied or is intended or designed for occupation by guests, whether rent is paid in money, goods, labor or otherwise. It does not include any jail, hospital, asylum, sanitarium, orphanage, prison, detention, or other building in which human beings are housed and detained under legal restraint. (Prior code § 4110(a))

9.02.090 Public place.

"Public place" means and includes, but is not limited to, any street, park, pier, beach, restaurant, cafe, theater, store, building playground, school ground recreational area or other place to which the public is invited or has access or any place open to the public view. (Prior code § 4110(g))

PART II. OFFENSES BY OR AGAINST PUBLIC OFFICERS AND GOVERNMENT

CHAPTER 9.08 IMPERSONATING AN OFFICER*

9.08.010 Unauthorized police uniform.

No person shall wear in the City any uniform helmet, cap, cap front, badge or button identical with or so similar in color or design to those adopted and worn by regular members of the Police Department as to be calculated or liable to deceive. (Prior code § 3510.5)

9.08.020 False reports.

No person shall knowingly make any false, misleading or unfounded report to the Police Department. (Prior code § 3510.6)

PART III. OFFENSES AGAINST THE PERSON

CHAPTER 9.14 TORT CLAIMS

9.14.010 Solicitation prohibited.

No person shall solicit employment for himself or for any other person, either directly or through some other person acting on his behalf, to prosecute collect, settle, compromise or negotiate for the settlement, compromise or collection of any tort claim, on behalf of any tort claimant, in which he himself has no pecuniary interest arising from such tort. (Prior code § 4260)

9.14.020 Exception—Joint tort claimants.

The provisions of Section 9.14.010 shall not be construed to prevent joint tort claimants from negotiating with each other for the purpose of combining respective claims or actions against the tort feasor. (Prior code § 4260.1)

***State law references**—Provisions on impersonating an officer, Pen. C. § 538d; making false reports to the police, Pen. C. §§ 148.1-148.6.

PART IV. OFFENSES AGAINST PUBLIC DECENCY

CHAPTER 9.16 NARCOTICS RELATED NUISANCE ABATEMENT†

9.16.010 Purpose.

The purpose of this Chapter is to promote public health, safety, and welfare by allowing the City Attorney to abate the nuisance caused by illegal conduct involving a controlled substance purpose on real property. (ORD-14-0009, § 1, 2014)

9.16.015 Additional enforcement remedies.

The procedures provided for in this Chapter shall be cumulative and in addition to any other procedure or legal remedy provided for in this Code or by State law for the abatement of nuisance related activities or conditions. Nothing in this Chapter shall be deemed to prevent the City from commencing a civil or criminal proceeding to abate a nuisance under applicable Civil, Penal, or Municipal Code provisions as an alternative to the proceedings set forth in this Chapter. (ORD-14-0009, § 1, 2014)

9.16.020 Definitions.

A. "Controlled substance" means a drug, substance, or immediate precursor which is listed in any schedule in Health and Safety Code Sections 11054, 11055, 11056, 11057, or 11058.

B. "Controlled substance purpose" means the manufacture, cultivation, importation into the State, transportation, possession, possession for sale, sale, furnishing, administering, or giving away, or providing a place to use or fortification of a place involving, cocaine, phencyclidine, heroin, methamphetamine, or any other controlled substance including synthetic narcotics, in a violation of Subdivision (a) of Section 11350, Sections 11351, 11351.5, 11352, or 11359, Subdivision (a) of Sec-

†Editor's note—ORD-14-0009, § 1, adopted Aug. 5, 2014, amended Ch. 9.16 in its entirety to read as herein set out. Former Ch. 9.16, §§ 9.16.010—9.16.040, was entitled "Nuisance—Drug Activity in a Building or Place", and derived from: Ord. C-6623 § 1 (part), 1989; and Ord. C-6654 § 1 (part), 1989.

tion 11360, or Sections 11366, 11366.6, 11377, 11378, 11378.5, 11379, 11379.5, 11379.6, or 11383 of the Health and Safety Code. (ORD-14-0009, § 1, 2014)

9.16.030 Narcotics nuisance abatement.

A. The City Attorney may file an action for unlawful detainer against any person who is in violation of the nuisance or illegal purpose provisions of Subdivision 4 of Section 1161 of the California Code of Civil Procedure, with respect to the controlled substance purpose.

B. The unlawful detainer action shall be based upon an arrest report or other report by a law enforcement agency, documenting a narcotics offense committed on the property observed by a police officer.

C. The City Attorney shall utilize the procedures set forth in Chapter 4 (commencing with Section 1159) of Title 3 of Part 3 of the California Code of Civil Procedure for filing an unlawful detainer action, except that in cases filed under this Section, the following also shall apply:

1. Prior to filing an action pursuant to this Section, the City Attorney shall give thirty (30) calendar days written notice to the property owner, requiring the property owner to file an unlawful detainer action for the removal of the person who is in violation of the nuisance or illegal purpose provisions of Subdivision 4 of Section 1161 of the Code of Civil Procedure with respect to the controlled substance purpose.

2. The notice to the property owner shall inform the property owner of a violation of the nuisance or illegal purpose provisions of Subdivision 4 of Section 1161 of the Code of Civil Procedure and an advisement to the property owner of the optional assignment provision contained in Subparagraphs (D) through (F) below.

3. The notice to the tenant shall, in at least 13-point bold type, meet the following requirements:

The notice shall contain the following language:

(Date)

(Name of tenant)

(Address of tenant)

Re: Long Beach Municipal Code Chapter 9.16

Dear (name of tenant):

This letter is to inform you that an eviction action may soon be filed in court against you for suspected drug activity. Long Beach Municipal Code Chapter 9.16, in accordance with State law, provides for the eviction of persons engaging in such conduct, as described below.

Long Beach Police Department records indicate that you, (name of arrestee), were arrested on (date) for violations of (list violations) at (address of property). A letter has been sent to the property owner(s) advising of your arrest and the requirements of the City's law, as well as the landlord's option to assign the unlawful detainer action to the City Attorney's Office.

A list of legal assistance providers is provided below. Please note, this list is not exclusive and is provided for your information only; the City Attorney's Office does not endorse or recommend any of the listed agencies.

Sincerely,

(Name of Deputy City Attorney)

Deputy City Attorney

Notice to Tenant: This notice is not a notice of eviction. You should call the City Attorney at (562) 570-2200 or a legal assistance provider to stop the eviction action if any of the following is applicable:

(1) You are not the person named in this notice;

(2) The person named in the notice does not live with you;

(3) The person named in the notice has permanently moved;

(4) You do not know the person named in the notice;

(5) You want to request that only the person involved in the nuisance be evicted, allowing the other residents to stay; or

(6) You have any other legal defense or legal reason to stop the eviction action. A list of legal assistance providers is attached to this notice. Some provide free legal assistance if you are eligible.

4. The respective notices shall be given in writing and served upon the owner and the tenant either by personal delivery or by deposit in the United States mail in a sealed envelope, postage prepaid, addressed to the owner at the address known to the City, or as shown on the last equalized assessment roll, if not known. Separate notice of not less than thirty (30) calendar days and documentation shall be provided to the tenant in accordance with this Subdivision. Service by mail shall be deemed to be completed at the time of deposit in the United States mail. Proof of giving the notice may be made by a declaration signed under penalty of perjury by any City employee that shows service in conformity with this Section.

D. The property owner shall, within thirty (30) calendar days of the mailing of the written notice, either provide the City Attorney with all relevant information pertaining to the unlawful detainer case, or provide a written explanation setting forth any safety-related reasons for noncompliance, and an assignment to the City Attorney of the right to bring an unlawful detainer action against the tenant.

E. The assignment shall be on a form provided by the City Attorney and may contain a provision for costs of investigation, discovery, and reasonable attorney's fees, in an amount not to exceed six hundred dollars ($600). An additional fee payable to the Los Angeles County Sheriff for lock-out services may be required.

F. If the City Attorney accepts the assignment of the right of the owner to bring the unlawful detainer action, the owner shall retain all other rights and duties, including the handling of the tenant's personal property, following issuance of the writ of possession and its delivery to and execution by the appropriate agency.

G. Upon the failure of the owner to file an action pursuant to this Section, or to respond to the City Attorney as provided in Paragraph (D), or having filed an action, if the owner fails to prosecute it diligently and in good faith, the City Attorney may file and prosecute the action, and join the owner as a defendant in the action. This action shall have precedence over any similar proceeding thereafter brought by the owner, or to one previously brought by the owner and not prosecuted diligently and in good faith. Service of the summons and complaint upon the defendant owner shall be in accordance with Sections 415.10 - 415.50 of the Code of Civil Procedure.

H. If a jury or court finds the defendant tenant guilty of unlawful detainer in a case filed pursuant to Paragraph (G), the City Attorney may be awarded costs, including the costs of investigation and discovery and reasonable attorney's fees. These costs shall be assessed against the defendant owner, to whom notice was directed pursuant to Paragraph (C)(1), and once an abstract of judgment is recorded, it shall constitute a lien on the subject real property.

I. This Section shall not prevent a tenant from receiving relief against a forfeiture of a lease pursuant to Section 1179 of the Code of Civil Procedure.

J. In any proceeding brought under this Section, the Court may, upon a showing of good cause, issue a partial eviction ordering the removal of any person, including, but not limited to, members of the tenant's household if the Court finds that the person has engaged in the activities described in Subdivision (A). Persons removed pursuant to this Section may be permanently barred from returning to or reentering any portion of the entire premises. The Court may further order as an express condition of the tenancy that the remaining tenants shall not give permission to or invite any person who has been removed pursuant to this Subdivision to return to or reenter any portion of the entire premises.

K. Notwithstanding Subdivision (b) of Section 68097.2 of the Government Code, the City may waive all or part of the costs incurred in furnishing the testimony of a peace officer in an unlawful detainer action brought pursuant to this Section. (ORD-14-0009, § 1, 2014)

9.16.050 Severability.

If any provision of this Chapter, or the application thereof to any person or circumstance, is held invalid, that invalidity shall not affect any

other provision or application of this Chapter that can be given effect without the invalid provision or application; and to this end, the provisions or applications of this Chapter are severable. (ORD-14-0009, § 1, 2014)

CHAPTER 9.17 UNLAWFUL WEAPONS OR AMMUNITION ON REAL PROPERTY ABATEMENT

9.17.010 Purpose.

The purpose of this Chapter is to promote public health, safety, and welfare by allowing the City Attorney to abate the nuisance caused by illegal conduct involving unlawful weapons or ammunition on real property. (ORD-15-0027, § 1, 2015)

9.17.015 Additional enforcement remedies.

The procedures provided for in this Chapter shall be cumulative and in addition to any other procedure or legal remedy provided for in this Code or by State law for the abatement of nuisance related activities or conditions. Nothing in this Chapter shall be deemed to prevent the City from commencing a civil or criminal proceeding to abate a nuisance under applicable Civil, Penal, or Municipal Code provisions as an alternative to the proceedings set forth in this Chapter. (ORD-15-0027, § 1, 2015)

9.17.020 Definitions.

A. "Unlawful weapons or ammunition purpose" means the illegal use, manufacture, causing to be manufactured, importation, possession, possession for sale, sale, furnishing, or giving away of any of the following:

1. A firearm, as defined in Subdivision (a) of Section 16520 of the Penal Code.

2. Any ammunition, as defined in Subdivision (b) of Section 16150 of the Penal Code or in Sections 16650 or 16660 of the Penal Code.

3. Any assault weapon, as defined in Sections 30510 or 30515 of the Penal Code.

4. Any .50 BMG rifle, as defined in Section 30530 of the Penal Code.

5. Any tear gas weapon, as defined in Section 17250 of the Penal Code. (ORD-15-0027, § 1, 2015)

9.17.030 Illegal weapons or ammunition on real property nuisance abatement.

A. The City Attorney may file an action for unlawful detainer against any person who is in violation of the nuisance or illegal purpose provisions of Subdivision 4 of Section 1161 of the California Code of Civil Procedure, with respect to the illegal weapons or ammunition on real property purpose.

B. The unlawful detainer action shall be based upon an arrest report or other report by a law enforcement agency, documenting an illegal weapons or ammunition on real property offense observed by a police officer.

C. The City Attorney shall utilize the procedures set forth in Chapter 4 (commencing with Section 1159) of Title 3 of Part 3 of the California Code of Civil Procedure for filing an unlawful detainer action, except that in cases filed under this Section, the following also shall apply:

1. Prior to filing an action pursuant to this Section, the City Attorney shall give thirty (30) calendar days written notice to the property owner, requiring the property owner to file an unlawful detainer action for the removal of the person who is in violation of the nuisance or illegal purpose provisions of Subdivision 4 of Section 1161 of the Code of Civil Procedure with respect to the illegal weapons or ammunition on real property.

2. The notice to the property owner shall inform the property owner of a violation of the nuisance or illegal purpose provisions of Subdivision 4 of Section 1161 of the Code of Civil Procedure and an advisement to the property owner of the optional assignment provision contained in Subsections D through F, below.

3. The notice to the tenant shall, in at least 14-point bold type, and provided in English and as

translated in all of the languages identified in Subdivision (b) of Section 1632 of the Civil Code, meet the following requirements:

The notice shall contain the following language:

"(Date)

(Name of tenant)

(Address of tenant)

Re: Long Beach Municipal Code Chapter 9.17

Dear (name of tenant):

This letter is to inform you that an eviction action may soon be filed in court against you for suspected illegal weapons or ammunition on real property activity. Long Beach Municipal Code Chapter 9.17, in accordance with State law, provides for the eviction of persons engaging in such conduct, as described below.

Long Beach Police Department records indicate that you, (name of arrestee), were arrested on (date) for violations of (list violations) at (address of property). A letter has been sent to the property owner(s) advising of your arrest and the requirements of the City's law, as well as the landlord's option to assign the unlawful detainer action to the City Attorney's Office.

A list of legal assistance providers is provided below. Please note, this list is not exclusive and is provided for your information only; the City Attorney's Office does not endorse or recommend any of the listed agencies.

Sincerely,

(Name of Deputy City Attorney)

Deputy City Attorney

Notice to Tenant: This notice is not a notice of eviction. You should call the City Attorney at (562) 570-2200 or a legal assistance provider to stop the eviction action if any of the following is applicable:

(1) You are not the person named in this notice;

(2) The person named in the notice does not live with you;

(3) The person named in the notice has permanently moved;

(4) You do not know the person named in the notice;

(5) You want to request that only the person involved in the nuisance be evicted, allowing the other residents to stay; or

(6) You have any other legal defense or legal reason to stop the eviction action. A list of legal assistance providers is attached to this notice. Some provide free legal assistance if you are eligible."

4. The respective notices shall be given in writing and served upon the owner and the tenant either by personal delivery or by deposit in the United States mail in a sealed envelope, postage prepaid, addressed to the owner at the address known to the City, or as shown on the last equalized assessment roll, if not known. Separate notice of not less than thirty (30) calendar days and documentation shall be provided to the tenant in accordance with this Subdivision. Service by mail shall be deemed to be completed at the time of deposit in the United States mail. Proof of giving the notice may be made by a declaration signed under penalty of perjury by any City employee that shows service in conformity with this Section.

D. The property owner shall, within thirty (30) calendar days of the mailing of the written notice, either provide the City Attorney with all relevant information pertaining to the unlawful detainer case, or provide a written explanation setting forth any safety-related reasons for noncompliance, and an assignment to the City Attorney of the right to bring an unlawful detainer action against the tenant.

E. The assignment shall be on a form provided by the City Attorney and may contain a provision for costs of investigation, discovery, and reasonable attorney's fees, in an amount not to exceed six hundred dollars ($600.00). An additional fee payable to the Los Angeles County Sheriff for lock-out services may be required.

F. If the City Attorney accepts the assignment of the right of the owner to bring the unlawful detainer action, the owner shall retain all other rights and duties, including the handling of the

tenant's personal property, following issuance of the writ of possession and its delivery to and execution by the appropriate agency.

G. Upon the failure of the owner to file an action pursuant to this Section, or to respond to the City Attorney as provided in Subsection D, or having filed an action, if the owner fails to prosecute it diligently and in good faith, the City Attorney may file and prosecute the action, and join the owner as a defendant in the action. This action shall have precedence over any similar proceeding thereafter brought by the owner, or to one previously brought by the owner and not prosecuted diligently and in good faith. Service of the summons and complaint upon the defendant owner shall be in accordance with Sections 415.10 - 415.50 of the Code of Civil Procedure.

H. If a jury or court finds the defendant tenant guilty of unlawful detainer in a case filed pursuant to Subsection G, the City Attorney may be awarded costs, including the costs of investigation and discovery and reasonable attorney's fees. These costs shall be assessed against the defendant owner, to whom notice was directed pursuant to Subsection C.1, and once an abstract of judgment is recorded, it shall constitute a lien on the subject real property.

I. This Section shall not prevent a tenant from receiving relief against a forfeiture of a lease pursuant to Section 1179 of the Code of Civil Procedure.

J. In any proceeding brought under this Section, the Court may, upon a showing of good cause, issue a partial eviction ordering the removal of any person, including, but not limited to, members of the tenant's household if the Court finds that the person has engaged in the activities described in Subsection A. Persons removed pursuant to this Section may be permanently barred from returning to or reentering any portion of the entire premises. The Court may further order as an express condition of the tenancy that the remaining tenants shall not give permission to or invite any person who has been removed pursuant to this Subsection to return to or reenter any portion of the entire premises.

K. Notwithstanding Subdivision (b) of Section 68097.2 of the Government Code, the City may waive all or part of the costs incurred in furnishing the testimony of a peace officer in an unlawful detainer action brought pursuant to this Section. (ORD-15-0027, § 1, 2015)

9.17.050 Severability.

If any provision of this Chapter, or the application thereof to any person or circumstance, is held invalid, that invalidity shall not affect any other provision or application of this Chapter that can be given effect without the invalid provision or application; and to this end, the provisions or applications of this Chapter are severable. (ORD-15-0027, § 1, 2015)

CHAPTER 9.20 NUDITY*

9.20.010 Waiters, waitresses and entertainers.

No person shall, while acting as a waiter, waitress or entertainer in an establishment which serves food, beverages, or food and beverages, including, but not limited to, alcoholic beverages for consumption on the premises of such establishment, expose his or her genitals, pubic hair, buttocks, natal cleft, perineum, anal region or pubic hair region, or shall any such person expose any device, costume or covering which gives the appearance of or simulates the genitals, pubic hair, buttocks, natal cleft, perineum, anal region or pubic hair region. (Prior code § 4195)

9.20.020 Exposure of female breasts.

No female person shall, while acting as a waitress or entertainer in an establishment which serves food, beverages, or food and beverages, including, but not limited to, alcoholic beverages for consumption on the premises of such establishment, expose the areola of either or both breasts or any portion of either or both breasts below the areola thereof, or shall any such female person employ

***State law reference**—Provisions authorizing cities to regulate indecent exposure by waiters, waitresses and performers, free of legislative preemption, Pen. C. §§ 318.5 and 318.6.

any device which is intended to simulate such portions of either or both breasts, or shall any such female person wear any type of clothing so that any portion of either or both breasts may be observed. (Prior code § 4195.1)

9.20.030 Permitting violation.

No person shall permit, procure, counsel or assist another person to violate any provision of Sections 9.20.010 or 9.20.020. (Prior code § 4195.2)

9.20.040 Exception—Theatrical performances.

The provisions of Sections 9.20.010, 9.20.020 or 9.20.030 do not apply to a theatrical performance in a theater, concert hall or similar establishment which is primarily devoted to theatrical performances. (Prior code § 4195.3)

9.20.050 Misdemeanor to be nude in a public place or in a place open to the public view.

A. It shall be unlawful for any person to appear, bathe, sunbathe, walk, or be in any public place or place open to public view in such manner so as to expose the human male or female genitals, vulva, pubis, pubic hair, cleft of the buttocks, perineum, or anus with less than a fully opaque covering, and/or to expose the nipples and/or the areola of the female breasts with less than a fully opaque covering. This provision may not be complied with by applying an opaque covering simulating the appearance of the specific anatomical part required to be covered. Violation hereof is a misdemeanor.

B. This Section shall not apply to children under the age of ten (10) years, or females engaged in breast-feeding of an infant under the age of two (2) years old. (Ord. C-7713 § 3, 2000: Ord. C-7591 § 3, 1999: Ord. C-7274 § 1, 1994: Ord. C-5908 § 1, 1982: Ord. C-5624 § 1 (part), 1980: prior code § 7300.4)

CHAPTER 9.22 ALCOHOLIC BEVERAGES

9.22.010 Public consumption—Prohibited.

No person shall transport into or drink or consume any alcoholic beverage in any public place except upon the premises licensed under an on-sale or on-sale general license under the State Alcoholic Beverage Control Act. (Prior code § 4150.1)

9.22.020 Public consumption—Mixture prohibited.

No person shall mix, blend, or combine any alcoholic beverage with any liquid in any public place for the purpose of consuming said mixture, combination or blend in any public place except upon premises licensed under an on-sale or on-sale general license under the State Alcoholic Beverage Control Act. (Prior code § 4150.2)

9.22.030 Public consumption—Sale prohibited.

No person as owner, manager, employee or otherwise of any restaurant, cafe, theater, store, or other such public place shall give, sell, or furnish to any other person any liquid in any public place to be mixed, blended, or combined with any alcoholic beverage for consumption in such public place, except upon premises licensed under an on-sale or on-sale general license under the State Alcoholic Beverage Control Act. (Prior code § 4150.3)

9.22.040 Public consumption—Permitting prohibited.

No person as owner, manager, employee, or otherwise of any restaurant, cafe, theater, store, or other such public place shall allow or permit any person to consume any alcoholic beverage in such public place except upon premises licensed under an on sale or on sale general license under the State Alcoholic Beverage Control Act. (Prior code § 4150.4)

9.22.050 Licensing public area.

Except for duly authorized and permitted professional, collegiate and other adult athletic events

conducted at Blair Field in Recreation Park, or such other event or activity at a specified site as may be expressly authorized by City Council resolution, no application may be made for a license under the State Alcoholic Beverage Control Act in or upon any public area under the authority of the Recreation Commission pursuant to Section 2.54.005 of this Municipal Code. (Ord. C-7324 § 1, 1995: prior code § 4150.5)

9.22.060 Beer, wine and champagne in certain public facilities.

Notwithstanding any other provision of this Chapter, beer, wine and champagne may be served, dispensed, furnished and consumed upon the premises of the following public facilities under circumstances which do not require a permit or license from the Department of Alcoholic Beverage Control, and provided that the requirements of all other applicable laws, rules or regulations are met:

A. Long Beach Museum of Art;

B. Rancho Los Cerritos;

C. Rancho Los Alamitos;

D. Wightman Theater in the recreation headquarters building;

E. Long Beach Art Association Gallery in the recreation headquarters building lobby;

F. Main library;

G. Rainbow Lagoon Park;

H. Promenade South;

I. Shoreline Aquatic Park. (Ord. C-6208 § 5, 1985: Ord. C-5710 § 1, 1981: prior code § 4150.6)

9.22.070 Unlawful alcohol consumption.

It is unlawful for any bather to consume any alcoholic beverage within one (1) marine league of any beach. However, this Section shall not be construed to regulate the consumption of alcoholic beverages on any motorboat. (ORD-11-0004 § 1, 2011)

9.22.075 Bather.

"Bather" has the same meaning as that set forth in California Harbor and Navigation Code Section 651.1. (ORD-11-0004 § 2, 2011)

9.22.080 Marine league.

"Marine League" means three (3) nautical miles. (ORD-11-0004 § 3, 2011)

CHAPTER 9.24 GAMBLING*

9.24.010 Prohibited games designated.

No person shall play or bet at, or as owner or employee open, deal, play, carry on or conduct any game of chance played with cards, dice, balls, pins, checkers, counters, quoits, beans, spindles, tables, wheels, machines, or any other device, contrivance or apparatus, or with any combination of any thereof, for money, checks, or other representative of value; provided, however, that the game known as bingo may be played in accordance with the provisions of Chapter 5.20. (Ord. C-5266 § 1, 1976: prior code § 4140.7)

9.24.020 Violation—Nuisance.

Any machine, contrivance, appliance, device, game, ticket, chance, share, interest, instrument or article operated, used, kept, possessed, placed or maintained in violation of the provisions of:

A. Section 330a of the State Penal Code;

B. Any section enumerated in Part I, Title 9, Chapter 9 of the State Penal Code; or

C. Section 9.24.030 of this Code is declared to be a nuisance and shall be subject to abatement as provided in Section 9.24.040. (Prior code § 4140.8)

9.24.030 Possession of machines prohibited.

No person shall keep, maintain, possess or have under their control in any place of business, or in any other place of public resort, either as an owner, lessee, agent, employee, mortgagee, or otherwise, any game of chance, table game, automatic payoff machine, or any device commonly known as a slot machine, as such slot machines or similar devices are defined in California Penal Code Section 330b(d). For the purposes of this Section, pinball and other amusement machines or devices, which are predominantly games of skill, whether

***State law reference**—Provisions on gambling, Pen. C. § 330 et seq.

affording the opportunity of additional chances or free plays or not, are not included within the term slot machine or device, as defined in this Section. (ORD-19-0034 § 4, 2019; Prior code § 4140.9)

9.24.040 Destruction of equipment.

A. Any article declared by Section 9.24.020 to be a nuisance, as a result of the operation, use, keeping, possession, placing or maintaining of which any person has been convicted of or has pleaded guilty to any violation of any law of this State or of any ordinance of this City, shall be destroyed by the Chief of Police after such plea, or after judgment of conviction becomes final. The contents of such machine shall be destroyed, or if money, shall be deposited in the General Purpose Fund of the City.

B. If any articles subject to destruction as provided in this Section are in the custody of any court within the City, the Chief of Police shall cause to be made an application to the judge of the court for an order releasing the articles to him for the purpose of complying with this Section. (Prior code § 4140.10)

9.24.050 Reserved.

Editor's note—ORD-19-0034 § 5, adopted Dec. 3, 2019, repealed § 9.24.050 entitled "Exception—Amusement zone," which derived from Prior code § 4140.11.

9.24.060 False identification—Possession prohibited.

No person shall use, display, present, carry or possess any identification card, paper or tag which contains any false statements or data, or which bears the name of a person other than of such person, for the purpose of being admitted to any place of entertainment or obtaining any goods. (Prior code § 4140.14)

9.24.070 False identification—Making prohibited.

No person, either for himself or as the agent or employee of another, shall make, prepare, sell or furnish any identification card, paper or tag, without first obtaining proof of the correctness of the statements or data thereon contained. Proof that such identification card, paper or tag contains false statements or data shall be prima facie evidence of the violation of this Section. (Prior code § 4140.15)

9.24.080 Identification card—Preparer designation.

Every person making or preparing any identification card, paper or tag shall print thereon the name and address of such person making or preparing such identification card, paper or tag, shall type or print across the face of such identification card, paper, or tag, the word "unofficial" in red letters as large as the largest letters on the face of such card, paper or tag. (Prior code § 4140.16)

CHAPTER 9.25 PUBLIC EXCRETION

9.25.010 Misdemeanor to urinate or defecate in public.

No person shall urinate or defecate in or at any "public place" as defined in Section 9.02.090 except at regularly provided toilet facilities. Violation hereof shall be a misdemeanor. (Ord. C-5878 § 1, 1982)

PART V. OFFENSES AGAINST PUBLIC PEACE

CHAPTER 9.30 DISORDERLY CONDUCT*

9.30.010 Annoying people or acting as capper.

No person shall:

A. Make insulting remarks to any person; or annoy or accost any person unknown to him;

B. Act as a capper for any place of amusement or for any place or person devoted to or engaged in any unlawful business, calling or vocation. (Prior code § 4130)

***State law reference**—Provisions on disorderly conduct, Pen. C. § 647.

9.30.020 Public disrobing.

No person shall dress or undress, or change clothing, in any public toilet or comfort station, or in any public recreational area, public beach, public street or any other property under the supervision and control of the recreational commission, or within or on any motor vehicle while the same is standing upon any public street or other public place. (Prior code § 4130.1)

9.30.025 Misdemeanor to enter a public restroom designated for use by the opposite sex.

No person above the age of five (5) years shall enter any public restroom or restroom in any public place designated for use by either men or women unless he or she is the appropriate sex. Violation thereof is a misdemeanor. (Ord. C-5907 § 1, 1982)

9.30.030 Public expectoration.

No person shall discharge mucus from the nose or mouth, or spit upon any sidewalk or other paved area of any park or recreation center, or upon any roque court, shuffleboard court, or other hard surfaced place set apart for the playing of any game in any park or recreation center, or upon any pier or promenade, or other public place whatsoever, or in any place where food intended for human consumption is stored, prepared, processed or served. (Prior code § 4130.3)

9.30.040 Unlawful assembly.

It is declared to be unlawful and a nuisance for any persons to congregate or assemble upon, over or across, or for any person to aid or instigate the congregation or assembling of persons, upon, over or across any street, lawn area or way or portion thereof in any public park, beach, pier, wharf or building or any entrance, steps or hallway leading in, to or through said places, in such a manner as to obstruct, hinder or annoy any person or persons in the free use thereof. (Prior code § 4130.4)

9.30.050 Obstructing public passage.

No person shall block, impede or obstruct any public place or any entrance, exit or approach to any place of business in a manner calculated or with intent to prevent, delay, hinder or interfere with any person in the free passage along or the entering or leaving of such public place or place of business. (Ord. C-5494 § 1, 1978: prior code § 4130.12)

9.30.060 Lookouts for illegal acts.

A. No person shall act as a guard or lookout for any building, premises or establishment used for gambling, prostitution, or any other form of vice or illegal act, or where intoxicating liquors are illegally kept, sold or purchased, or for any person soliciting, offering or engaging in prostitution, gambling or any other form of vice or illegal act, on street or sidewalk.

B. No person shall give any signal, intended to, or calculated to warn, or give warning of the approach of any peace officer to any person in or about such building or premises or places mentioned in Subsection 9.30.060.A. (Ord. C 5882 § 1, 1982)

CHAPTER 9.31 LOUD PARTIES ON PRIVATE PROPERTY

9.31.010 Loud noises prohibited.

No person shall cause or permit loud music or other noises caused by a party, gathering or assemblage of persons on private property to disrupt the public peace. Noise that is audible from a distance of fifty feet (50') or more from the property shall be deemed to disrupt the public peace. Any person who causes or permits any such loud music or other noises is guilty of a public offense punishable under the provisions of Title 1, Chapter 1.32 of this Code. (ORD-05-0036 § 1, 2005)

9.31.020 Enforcement.

When law enforcement personnel at the scene determine that the provisions of this Chapter have been violated, such law enforcement personnel are authorized to take all necessary enforcement actions, including the following:

A. Arrest and/or issue a citation to the responsible person. For purposes hereof, the "responsible

person" shall be a person or persons owning or occupying the offending property or otherwise authorizing or permitting the loud music or other noises to emanate from the property;

B. Direct the responsible person to immediately terminate the activity that is causing the loud noise; and

C. Issue a written notice to the responsible person that if within a thirty (30) day period after the initial response law enforcement personnel are again required to respond to the property to address a violation of this Chapter, then the responsible person shall be liable for payment of all costs and expenses incurred by law enforcement personnel during second or subsequent responses in accordance with Section 9.31.030. (ORD-05-0036 § 1, 2005)

9.31.030 Second and subsequent responses.

If after issuance of the written notice required under this Chapter law enforcement personnel are required to respond to the property to address another violation of this Chapter within a thirty (30) day period after issuance of said notice, then the responsible person or the legal guardian(s) thereof shall be liable for all actual costs and expenses incurred by the City during second or subsequent responses. (ORD-05-0036 § 1, 2005)

9.31.040 Collection of costs.

The expense of a reimbursable response hereunder shall be charged against the person liable for the expense under this Chapter. The charge constitutes a debt of that person to the City, and is collectible by the City in the same manner as in the case of an obligation under a contract, expressed or implied. (ORD-05-0036 § 1, 2005)

CHAPTER 9.32 DRIVE-IN RESTAURANTS

9.32.010 Motor vehicle operation.

No person on the premises of a "drive-in or takeout restaurant", as defined in Chapter 9.02, shall race or accelerate the motor of any vehicle, or bring to a sudden start or stop any motor vehicle, or blow or honk the horn of any motor vehicle except where reasonably necessary in the operation thereof. (Prior code § 4190)

9.32.020 Blocking ingress or egress.

No person shall leave a motor vehicle on the premises of any "drive-in or takeout restaurant", as defined in Chapter 9.02, so as to block or obstruct any driveway of ingress or egress of said premises. (Prior code § 4190.1)

9.32.030 Alcoholic beverages.

No person on the premises of any "drive-in or takeout restaurant", as defined in Chapter 9.02, shall have in his possession any bottle, can, or other receptacle containing any alcoholic beverage which has been opened or a seal broken, or the contents of which have been partially removed. This Section does not apply within premises licensed under the Alcoholic Beverage Control Act, or to any person under twenty-one (21) years of age, or to any person keeping alcoholic beverages in a vehicle in the manner authorized by the Vehicle Code of the State. (Prior code § 4190.2)

9.32.040 Uninvited use of premises.

No person shall enter or remain on the premises of a "drive-in or takeout restaurant", as defined in Chapter 9.02, where the owner or operator of the drive-in or takeout restaurant has withdrawn from such person, for cause and not contrary to the provisions of the Unruh Civil Rights Act (Civil Code Section 51), the actual or implied invitation extended generally to members of the public to enter such premises. (Prior code § 4190.3)

9.32.050 Exception—Peace officer.

Section 9.32.040 shall have no application to a trespass committed by any officially authorized peace officer or law enforcement agent when such trespass is committed in the execution of such officer's or agent's official duty. (Prior code § 4190.4)

CHAPTER 9.33 CITY LIBRARY RULES

9.33.010 Applicability of Chapter.

The rules set forth in this Chapter shall apply to all libraries located in the City of Long Beach. (ORD-24-0008 § 1, 2024)

9.33.020 City Library rules.

A. The City Manager will promulgate rules for the use of City libraries.

B. Such rules shall be formulated to ensure that the libraries and meeting facilities serve their primary purposes. In the case of libraries, these purposes include the provision of an orderly environment in which people may read, study, use library materials and equipment and participate in library or community programs. The rules may regulate disruptive behavior, noise, offensive odors, health and sanitation hazards, and bringing possessions, materials or objects into the library or facility which are likely to interfere with its use by others. The rules may not unreasonably or unfairly restrict access to libraries or facilities by any person or group.

C. Any person who has violated any rule or regulation duly adopted by the City Manager may be subject to the suspension of his or her borrowing or library visitation privileges for a period not to exceed one (1) year, as provided by the library rules.

D. Notwithstanding Subsection (C) above, any person who has unresolved fees for lost or damaged library materials on their library account shall be subject to suspension of his or her borrowing privileges, until such time that fees are brought to Twenty Dollars ($20) or below. Any person subject to suspension of his or her borrowing privileges, as authorized by subsection (D), may appeal the suspension in the manner prescribed by the City's Director of Library Services. The determination of the Director of Library Services on the appeal shall be final.

E. Any person subject to suspension of his or her library visitation privileges, as authorized by Subsection (C) above, may appeal the suspension pursuant to Section 9.33.030. Unless otherwise ordered by the hearing officer, suspensions remain in effect during the pendency of any appeal.

F. Rules for the use of City libraries and meeting facilities shall be conspicuously posted on the premises. Any person who violates the rules shall be personally advised of the violation and the rules' requirements. Any person who fails or refuses to comply with any rule after receiving a personal advisement shall be warned that continued failure to comply may result in the person being required to leave the premises.

G. Any person who fails or refuses to leave the facility or who returns to the facility during the time that their visitation privileges have been suspended after being given personal advisement, warning and direction to leave, shall be guilty of a misdemeanor which shall be punishable by a fine not exceeding One Thousand Dollars ($1,000) per violation, or by imprisonment in the County Jail for a period not exceeding six (6) months, or by both such fine and imprisonment. (ORD-24-0008 § 1, 2024)

9.33.030 City Library privileges suspension appeals.

A. Any person subject to suspension of his or her library visitation privileges, pursuant to Section 9.33.020(C) of this Code, may appeal the suspension by completing an appeal form, stating the basis of the appeal, and returning it to the City Clerk's office within seven (7) days of the start of the suspension.

B. The City Manager or the designee shall serve as the hearing officer for any appeal. The City Manager or the designee may initiate such proceedings and shall cause a notice of such hearing to be given to the person subject to suspension at the address set forth in the library card application or served personally if no such address is available of the time and date of the suspension hearing. Notice of the hearing date will be served on the person subject to suspension at least five (5) business days before the hearing. At the time set for the hearing or at the date to which the hearing may be continued by the City Manager or the

designee, the person whose privileges are subject to suspension may be heard and may present any facts to show why such privileges should or should not be suspended. At the close of the hearing, or at any time within thirty (30) days thereafter, the City Manager or the designee shall determine from the facts produced at the hearing, and from any other facts in his or her possession whether or not the privileges in question should be revoked. The City Manager or the designee shall make his or her order accordingly and may make such order conditional upon the doing or not doing of any act by the person whose privileges are subject to suspension, which the City Manager or the designee deems for the public good. Notice of such suspension shall be given to the person by the hearing officer.

C. Any person directly aggrieved by an administrative decision of the hearing officer may within ten (10) business days, file an appeal with the City Council. Privileges shall remain subject to the conditions of the hearing decision during any period of appeal. (ORD-24-0008 § 1, 2024)

CHAPTER 9.34 CIRCULATING PETITIONS

9.34.010 Prohibited in certain public buildings.

No person shall circulate any petition, or solicit any person to sign any petition of whatsoever nature, in the City Hall, public utilities building, public safety building, any public library or other building open to and used by the public for the purpose of transacting public business, nor upon the grounds, sidewalks, or other areas surrounding and adjacent to said buildings. (Prior code § 4614)

CHAPTER 9.35 AGGRESSIVE SOLICITATION

9.35.010 Aggressive solicitation prohibited.

A. It shall be unlawful for any person to solicit by threatening, harassing, intimidating or aggressively coercing another person on a public street or sidewalk or any place open to the general public. This Chapter does not regulate solicitation on private property.

B. "Solicitation" means any verbal request, or any non-verbal request made with a sign, by a person seeking an immediate donation of money, food, cigarettes or items of value. Purchase of an item for an amount far exceeding its value, under circumstances where a reasonable person would understand that the purchase is in substance a donation, is a donation for purposes of this Chapter.

C. "Solicit" means to be engaged in the act of solicitation.

D. For purposes of this Section, a person aggressively coerces, threatens, harasses or intimidates another person when:

1. The solicitor's conduct would cause a reasonable person in the position of the solicitee to fear for his or her safety; or

2. The solicitor intentionally blocks the path of the solicitee; or

3. The solicitor persists in following the solicitee closely, and continues to demand money or other things of value after the solicitee has rejected the solicitation by words or conduct.

E. For purposes of this Section, the following facts, among others, are relevant in deciding whether a reasonable person would have cause to fear for his or her safety:

1. The solicitor makes physical contact with the solicitee or the solicitor uses verbally abusive language;

2. The proximity of the solicitor to the solicitee; or

3. The duration of the solicitation; or the solicitor makes threatening gestures or other threatening conduct, including closely following the solicitee. (ORD-11-0026, § 1, 2011)

9.35.020 Prohibited locations.

A. It shall be unlawful for any person to solicit another person who is in or at any of the following locations:

1. In a public transportation bus or public transportation bus stop;

2. Within twenty feet (20') of an automated teller machine that is adjacent to a public sidewalk or street;

a. "Automated teller machine" shall mean any electronic information processing device which accepts or dispenses cash in connection with a credit, deposit or convenience account;

3. In a City-owned parking structure or surface lot;

4. In the outdoor dining area of a restaurant, cafe, or similar establishment which serves food or drinks for immediate consumption. (ORD-11-0026, § 1, 2011)

9.35.030 Exception.

The prohibitions listed in Section 9.35.020 shall not apply to solicitations related to business which is being conducted on the subject premises or location by the owner or responsible party. (ORD-11-0026, § 1, 2011)

9.35.040 Penalty.

Violation of, or failure to comply with, any provision of this Chapter 9.35 constitutes a criminal offense punishable as an infraction for the first offense, and a misdemeanor for any subsequent offense committed within a twelve (12) month period, with criminal penalties set forth in Chapter 1.32 of this Code. (ORD-11-0026, § 1, 2011)

9.35.050 Severability.

In the event any portion of Chapter 9.35 is deemed to be unenforceable, or is in conflict with applicable law, the remainder of Chapter 9.35 will be enforced and will remain in full force and effect. (ORD-11-0026, § 1, 2011)

CHAPTER 9.36 LOITERING FOR DRUG ACTIVITIES OR GRAFFITI

9.36.010 Loitering for drug activity.

It is unlawful for any person to loiter in, on or near any street or alley or place open to the public or near any public or private place for the purpose of engaging in drug related activity defined as criminal offenses in Chapters 6 and 6.5 of Division 10 of the California Health and Safety Code. As used in this Chapter, "loiter" means to delay or linger without lawful business. (Ord. C-6771 § 1 (part), 1990)

9.36.020 Loitering for graffiti.

It is unlawful for any person to loiter in, on or near any street or alley or place open to the public or near any public or private place for the purpose of engaging in graffiti activity defined as a criminal offense in Section 594 of the Penal Code. (Ord. C-6771 § 1 (part), 1990)

CHAPTER 9.37 LONG BEACH NUISANCE CODE

9.37.010 Purpose and intent.

The purpose of this Chapter is to provide for the administrative abatement of nuisance related activities or conditions which affect the social and economic stability of neighborhoods, impair prop-

erty values and which are injurious or detrimental to the health, safety and general welfare of the citizens of Long Beach. (Ord. C-7479 § 1, 1997)

9.37.020 Additional enforcement remedies.

The procedures provided for in this Chapter shall be cumulative and in addition to any other procedure or legal remedy provided for in this Code or by State law for the abatement of nuisance related activities or conditions. Nothing in this Chapter shall be deemed to prevent the City from commencing a civil or criminal proceeding to abate a nuisance under applicable Civil, Penal or Municipal Code provisions as an alternative or alternatives to the proceedings set forth in this Chapter. (Ord. C-7479 § 1, 1997)

9.37.030 City Manager/Administrative Abatement Officer.

As used in this Chapter, "Administrative Abatement Officer" shall mean the City Manager and any other person or persons designated by the City Manager as being an Administrative Abatement Officer. (Ord. C-7479 § 1, 1997)

9.37.040 Person/responsible person/party.

A. As used in this Chapter, "person"/"responsible person"/"party" shall mean any individual, business or entity who is responsible for causing, maintaining or permitting a nuisance activity or condition. The terms "person", "responsible person" or "responsible party" include, but are not limited to, a property owner, tenant, person with a legal interest in real property or person in possession or occupying real property, the president or other officer of a corporation, a business owner or manager of a business.

B. Any act of negligent or willful conduct of a minor which results in the creation or maintenance of a condition or activity which constitutes a nuisance within the meaning of this Chapter shall be imputed to the parent or guardian having custody and control of the minor for all purposes, including the duty to abate the nuisance(s) and the imposition of administrative penalties and costs as provided for herein. The parent or guardian having custody and control of the minor shall be jointly and severally liable with the minor for any and all penalties or costs imposed pursuant to this Chapter. (Ord. C-7479 § 1, 1997)

9.37.050 Abate/abatement.

As used in this Chapter, the terms "abate" and "abatement" shall mean action to terminate, remove, stop, cease, repair, replace or otherwise remedy a nuisance related activity or condition by such means and in such manner as is necessary to the interests of the health, safety or general welfare of the public. (Ord. C-7479 § 1, 1997)

9.37.060 Premises.

As used in this Chapter, the term "premises" shall mean any location, building, structure, residence, garage, room, shed, shop, store, dwelling, lot, parcel, land or portion thereof whether improved or unimproved. (Ord. C-7479 § 1, 1997)

9.37.070 Service of notice.

A. Whenever any notice, amended notice, supplemental notice, order, statement or other document is required to be served upon any person, by the provisions of this Chapter, such service shall be either by personal service or by delivery into the United States Mail, postage prepaid, certified or registered mail, to the person's last known address. If service is by mail, the service is complete at the time of the deposit, but any period of notice and any right or duty to do any act or make any response within any period or on a date certain shall be extended five (5) days if the place of address is within the State of California or ten (10) days if the place of address is outside the State of California.

B. In lieu of personally serving the person or service by certified or registered mail, service of any notice, amended notice, supplemental notice, order, statement or other document may be made as follows:

1. In the event that the responsible person refuses to accept certified or registered mail or cannot be personally served, service may be made by substituted service. In lieu of personal delivery

of a copy of the document, notice may be served by leaving a copy during usual office hours at the person's usual place of business with the individual who is apparently in charge, and by thereafter mailing by first-class mail a copy of the notice to the person at the address where the copy of the notice was left. Or, a document may be served by leaving a copy at the person's dwelling or usual place of abode in the presence of a competent member of the household, at least eighteen (18) years of age, and thereafter mailing by first-class mail a copy of the notice to the person at the address where the copy was left.

2. In the event a person refuses to accept certified or registered mail or cannot be personally served or served by substituted service and has a property manager or rental agency overseeing the premises, substituted service may be made as set forth in Subsection 9.37.070.B.1 upon the property manager or rental agency.

3. If a person lives out of State and will not accept certified or registered mail, then service may be made by first-class mail. (Ord. C-7479 § 1, 1997)

9.37.080 Abatement of nuisance related activities or condition.

Any activity, condition or premise(s) maintained as described herein is declared to be a public nuisance and shall be abated by cessation of the activity, rehabilitation, demolition, removal, repair or other appropriate remedy pursuant to the procedures set forth in this Chapter. (Ord. C-7479 § 1, 1997)

9.37.090 Nuisance defined.

It is hereby declared a public nuisance, or an act in the nature of a public nuisance, for any person or party to cause, permit, abet or otherwise allow any premises in this City to be used in such a manner that any one (1) or more of the activities or conditions described in the following Subsections are found to occur thereon:

A. Any condition or activity which is a "nuisance" or a "public nuisance" as defined in Sections 3479 and 3480 of the Civil Code of the State of California or which is specifically declared to constitute a nuisance or public nuisance by any statute of the State of California or by any ordinance of the City.

B. The violation of any provisions of the latest edition of the California Building Standards Code ("Title 24 of the California Codes of Regulations") that have been adopted, as amended, by the City:

1. California Building Code;
2. California Residential Code;
3. California Electrical Code;
4. California Mechanical Code;
5. California Plumbing Code;
6. California Energy Code;
7. California Historical Building Code;
8. California Fire Code;
9. California Existing Building;
10. California Green Building Standards Code;
11. Uniform Housing Code.

C. The violation of any provision of Title 18 (Buildings and Construction) or Title 21 (Zoning) of this Code.

D. The operation or maintenance of any business, trade or profession in violation of Title 5 of this Code.

E. The frequent gathering, or coming and going, of people who have an intent to purchase or use controlled substances on or at any premises in this City.

F. Participation in a criminal street gang as proscribed by California Penal Code Section 186.22.

G. The making or continuing, or causing to be made or continued, of any loud, unnecessary or unusual noise which disturbs the peace and quiet of the neighborhood or which causes discomfort or annoyance to any reasonable person of normal sensitiveness residing in the area.

H. The occurrence of criminal activity at any premises which threatens the life, health, safety or welfare of the residents of the premises, neighbors or the public.

I. Buildings which are abandoned, boarded up, partially destroyed or left unreasonably in a state of partial construction.

J. Overgrown vegetation causing detriment to neighboring properties or property values or which is likely to attract rodents, vermin or other pests, or which causes a hazardous condition to pedestrian and/or vehicular traffic.

K. Premises including, but not limited to, building exteriors which are maintained in such condition as to become so defective, unsightly or in such condition of deterioration or disrepair that the same causes diminution of the property values of surrounding property or is materially detrimental to proximal properties and improvements. This includes, but is not limited to, the keeping and disposing of or the scattering over the property or premises of any of the following: (1) lumber, junk, trash or debris; (2) abandoned or discarded or unused objects or equipment such as automobiles, furniture, stoves, refrigerators, freezers, cans or containers; (3) stagnant water or excavation(s); (4) any device, decoration, design, fence, structure, clothesline or vegetation which is unsightly by reason of its condition or inappropriate location; or (5) permitting or allowing any graffiti to remain on any building, wall fence or structure.

L. The use of any premises for the purpose of illegal gambling, lewdness, assignation, or prostitution as proscribed by State law or this Code.

M. The maintenance, use, rental or lease of any premises, or sub-unit thereof, including single-family dwellings, where persons are allowed to congregate, gather or loiter in such a manner as to disturb the peace of other persons lawfully on the property itself or lawfully in the vicinity of the property.

N. The use of any premises for the purpose of unlawfully selling, serving, storing, keeping, manufacturing or giving away any controlled substance, precursor, or analog as those terms are defined by State law.

O. Noise disturbances in violation of Chapter 8.80 of this Code.

P. The sale, purchase or possession of marking pens or etching tools in violation of Chapter 9.57 of this Code.

Q. The sale, purchase or possession of pressurized paint containers in violation of Chapter 9.56 of this Code.

R. Loitering or loitering for drug activities or graffiti in violation of Chapter 9.36 or Chapter 9.58 of this Code.

S. The discharge of any gun, compressed air gun, rifle, pistol or other firearm in violation of Chapter 9.62 of this Code.

T. The violation of any provision of Title 12 (Oil Production Regulations) of this Code.

U. Maintenance of properties or premises in such a manner as to cause substantial diminution of the enjoyment, use, or property values of adjacent properties. (ORD-11-0012, § 2, 2011; Ord. C-7479 § 1, 1997)

9.37.100 Notification of nuisance and abatement thereof.

A. Whenever the City Manager or his authorized designee declares or finds that any nuisance activity or condition is being maintained or carried on at any premises in the City contrary to the provisions of this Chapter, the City Manager or his authorized designee shall give written "Notice of Abatement" to any and all responsible persons or parties setting forth a brief description of the activity or condition constituting the nuisance and the sections of this Chapter that are being violated.

B. The notice shall set forth a reasonable time limit not to exceed thirty (30) days for correcting or abating the nuisance and may also set forth:

1. Suggested methods of correction or abatement and the fact that the City will take steps to abate the nuisance if the person fails to do so; and

2. That administrative penalties and/or administrative costs will be assessed against the responsible person in the event the nuisance activity or condition is not corrected or abated within the time frame established by the notice for correcting or abating the nuisance.

C. Except in the case of an emergency situation wherein the nuisance condition or activity poses an immediate threat to the health, safety, or

general welfare of the public, the time permitted for correction or abatement shall be at least fifteen (15) calendar days.

D. The City Manager or his authorized designee may grant an extension of time to abate a nuisance if, in his/her opinion, good cause for an extension exists.

E. The person or party who has been served with notice pursuant to this Section may, within seven (7) calendar days, make a written application to the City Manager or his authorized designee for a hearing on the question of whether a nuisance activity or condition in fact exists; whether the person to whom the notice was directed is responsible for the creation or maintenance of such nuisance; and whether the City Manager or his authorized designee has provided sufficient time to correct or abate the nuisance condition or activity.

F. Upon receipt of a timely written application for hearing, the City Manager or his authorized designee shall establish the date and time of the hearing and shall so notify the applicant in writing. Failure to make timely application for a hearing as provided for in this Section shall be deemed a conclusive admission that: (1) the nuisance activity or condition described in the notification of nuisance does or did exist, (2) that the person(s) to whom the notice was directed is in fact the person(s) responsible for creating or maintaining the nuisance condition or activity, and (3) that the time specified in the notice for the correction or abatement of the nuisance is, in fact, reasonable under the circumstances.

G. The hearing provided for in this Section shall be conducted by a Hearing Officer appointed by the City Manager or his authorized designee. At the time stated in the notice of hearing, the Hearing Officer shall hear and consider all relevant evidence, including, but not limited to, testimony from the applicant, owners, City personnel, neighbors, witnesses or other interested parties, and may consider staff reports or other written materials relative to the matter. The hearing may be continued from time to time as appropriate and the strict rules of evidence shall not apply. Proof of the existence of a nuisance condition or activity must be by a preponderance of the evidence and the burden of proof on this issue is upon the City.

H. At the conclusion of the hearing, the Hearing Officer may confirm, amend or modify the "Notice of Abatement" or order, or extend the time for compliance. The decision of the Hearing Officer shall be final and conclusive. Written notice of the Hearing Officer's decision and findings shall be given and said notice shall state clearly and concisely the basis for the Hearing Officer's findings with respect to the existence of the nuisance activity or condition. The notice shall further state that unless the person or party shall cause the abatement of the nuisance activity or condition, pursuant to the orders contained in the notice, the nuisance shall be abated, if appropriate, by the City at the expense of the owner, and that administrative penalties and/or costs will be assessed against the person for noncompliance with the order. (Ord. C-7479 § 1, 1997)

9.37.110 Notice of administrative penalty.

A. After the time for abatement or correction has expired, the City Manager or his authorized designee shall determine whether the person or party has taken the necessary abatement or corrective action and whether the nuisance activity or condition has in fact been abated.

B. If the City Manager or his authorized designee determines that the person has complied with the "Notice of Abatement" or order and that the nuisance has been abated, the person shall be notified in writing of such determination and the administrative action shall be suspended. If the City Manager or his authorized designee suspends the administrative action, he/she may continue to monitor the premises or activity associated with it for a period not to exceed eighteen (18) months.

C. If the City Manager or his authorized designee determines that the person has failed to comply with the initial abatement order or any extension thereof or that the nuisance activity or condition has recurred within eighteen (18) months of the suspension of the case, the City Manager or his authorized designee may impose, after a hear-

ing, an administrative penalty and/or administrative costs as provided in this Chapter. In the event administrative penalties or costs are imposed by the City Manager or his authorized designee, the responsible person shall be notified in writing of the amount of the administrative penalty imposed in accordance with the provisions set forth in this Chapter. The hearing provided for in this Subsection shall be in substantial conformity with the hearing procedures established in Subsection 9.37.100.G, and the decision of the Hearing Officer shall be final and conclusive.

D. In addition to imposing administrative penalties or costs, the City Manager or his authorized designee may issue another order to correct or abate the nuisance condition or activity for the existence of any nuisance which has not been abated, or which has recurred within the eighteen-month period the action was held in suspension. (Ord. C-7479 § 1, 1997)

9.37.120 Administrative penalties.

A. Administrative penalties imposed by the City Manager or his authorized designee are not to exceed a maximum of two hundred fifty dollars ($250.00) per day for each on-going violation, except that the total administrative penalty shall not exceed five thousand dollars ($5,000.00), exclusive of any administrative costs, for any violation or related series of violations.

B. In determining the amount of administrative penalty, the City Manager or his authorized designee shall take any or all of the following factors into consideration:

1. The duration of the violation;

2. The frequency, recurrence and number of violations, related or unrelated, by the same violator;

3. The seriousness of the violation;

4. The good faith efforts of the violator to abate the nuisance or otherwise come into compliance;

5. The economic impact of the penalty on the violator;

6. The impact of the violation on the community;

7. Such other factors as justice may require.

C. Administrative penalties imposed shall accrue from the date specified in the compliance order and shall cease to accrue on the date the violation is corrected as determined by the City Manager or his authorized designee.

D. The City Manager or his authorized designee, in his/her discretion, may suspend the imposition of applicable administrative penalties for any period of time during which:

1. The violator has filed for necessary permits; and

2. Such permits are required to achieve compliance; and

3. Such permit applications are actively pending before the City, State or other appropriate governmental agency. (Ord. C-7479 § 1, 1997)

9.37.130 Administrative costs.

A. In addition to the imposition of administrative penalties, the City Manager or his authorized designee may assess administrative costs against the person when it is determined that a violation has occurred and that compliance has not been achieved within the time specified in the initial compliance order or that a violation has recurred within eighteen (18) months of the suspension of the case.

B. The administrative costs may include any and all actual costs incurred by the City in connection with the matter before the City Manager or his authorized designee including, but not limited to, costs of investigation, staffing costs or staffing overhead incurred in preparation for the hearing and for the hearing itself, and costs incurred for all inspections or reinspections necessary to enforce the compliance order. (Ord. C-7479 § 1, 1997)

9.37.140 Abatement by City Manager.

If the nuisance related condition or activity is not completely abated in the manner and within the time set forth in the "Notice of Abatement" or order of the City Manager or his authorized designee, then the City Manager or his authorized designee, in addition to the imposition of administrative costs or penalties, may cause the nuisance

to be abated by City forces or private contractor. The cost of the abatement shall be assessed to the responsible party and shall reflect the actual cost incurred by the City in effecting the abatement. (Ord. C-7479 § 1, 1997)

9.37.150 Record of administrative penalties and costs; cost of abatement; hearing.

A. The City Manager or his authorized designee shall keep an itemized account of any administrative penalty or administrative cost assessed as well as the cost incurred by the City in abating a nuisance and shall also give written notice to the responsible party or parties of any such penalty or costs assessed, together with a notice of the time and place when a hearing will be held by a Hearing Officer appointed by the City Manager or his authorized designee to determine the appropriateness of the penalties and/or costs assessed.

B. At the time fixed for the hearing concerning the appropriateness of the penalties and/or costs assessed, the Hearing Officer shall hear and consider all relevant evidence, including, but not limited to, testimony from the person assessed, City personnel or other interested parties, and may consider staff reports or other written materials relative to the matter. Proof of the appropriateness of the costs or penalties assessed must be by a preponderance of the evidence and the City shall have the burden of proof on this issue. At the conclusion of the hearing, the Hearing Officer shall confirm, revise, correct or modify the amount of the penalties or costs assessed. The decision of the Hearing Officer shall be final and conclusive, and the responsible party or parties shall be notified in writing of the Hearing Officer's determination. (Ord. C-7479 § 1, 1997)

9.37.160 Expenses and administrative penalties and costs a lien against the property.

If a property owner does not pay the administrative penalties, administrative costs or the expense of abating the nuisance within ten (10) days after the Hearing Officer confirms the administrative penalty, administrative costs or costs of abatement, the costs and penalties shall become a lien against the real property upon which the nuisance was abated. The lien shall continue until it is paid, together with interest at the legal rate per year computed from the date of confirmation of the costs or penalties until payment. The lien may be collected at the same time and in the same manner as ordinary Municipal taxes are collected, and shall be subject to the same penalties and the same procedure and sale in case of delinquency as provided for ordinary Municipal taxes. All acts applicable to levy, collection and enforcement of Municipal taxes apply to this lien. (Ord. C-7479 § 1, 1997)

9.37.170 Notice of lien.

The City shall file in the office of the County Recorder a certificate substantially in the following form:

NOTICE OF LIEN

Under the authority of Government Code Sections 38773.5 and 53069.4, as well as Chapter 9 of the Long Beach Municipal Code, the City did on _____, 20____, abate a nuisance upon the real property hereafter described, and also on _____, 20____, did impose the cost of the abatement and administrative costs and penalties upon the real property. The City of Long Beach claims a lien for costs/charges on the real property for the expense of doing the work in the amount of $_____ and for the amount of $_____ for administrative costs and $_____ for administrative penalties, for a total amount of $_____. This amount is a lien against the real property until it is paid, with interest at the legal rate per year from _____, 20____ (insert date of confirmation of statement), and discharged of record. The real property referred to above, and upon which the lien is claimed is that certain parcel of land situated within the City of Long Beach, County of Los Angeles, State of California, more particularly as follows:

_____

_____

Dated _____, 20____.

City of Long Beach

By_____

(ORD-19-0032 § 8, 2019; Ord. C-7479 § 1, 1997)

9.37.180 Alternative method of collection.

Administrative penalties, administrative costs and the cost of abatement incurred by the City are a personal debt and obligation owed to the City and, in addition to any other means of enforcement, the City Attorney is authorized to bring an action on behalf of the City against the responsible party or parties for collection of administrative penalties, administrative costs or for the collection of the expense of abatement in any court of competent jurisdiction. (Ord. C-7479 § 1, 1997)

9.37.190 Right of judicial review.

A person contesting a final administrative order or decision of the City Manager or his authorized designee regarding the imposition, enforcement or collection of the administrative fines or penalties provided for in this Chapter may, within twenty (20) days after service of the final administrative order or decision, seek review by filing an appeal to be heard by the Municipal court in accordance with the provisions and procedures established by California Government Code Section 53069.4. (Ord. C-7479 § 1, 1997)

PART VI. OFFENSES AGAINST PROPERTY

CHAPTER 9.38 PUBLIC WORKS OFFICES, BUILDINGS AND YARDS

9.38.010 Purpose.

It is declared that the purpose of this Chapter is to authorize and provide for the prohibition, limitation and regulation of the entry, access, occupancy or use by members of the public of the offices, buildings, facilities or service yards of the Long Beach Department of Public Works or any areas or parts thereof, and to make it a trespass for any person to enter, occupy or use any such restricted premises without permission or in any manner other than as prescribed by applicable regulations. (Ord. C-5765 § 1 (part), 1981: prior code § 7496)

9.38.020 Defined.

As used in this Chapter the term offices, buildings, facilities or service yards of the Department of Public Works means and includes the offices of the Department of Public Works and the Bureau of Engineering located in the Long Beach City Hall, the offices and service yard of the Bureau of Public Service located at 1601 San Francisco Avenue, the Refuse Collection Office and service yard located at 2901 East Willow Street, the Animal Control Office and service yard located at 3001 East Willow Street, the offices and service yard of the Park Bureau located at 2760 Studebaker Road, and the offices and service yard of the Bureau of Aeronautics located at the Long Beach Airport, and includes any and all areas or parts of such offices, buildings, facilities and yards as they now exist or as the same may hereafter be altered, modified or relocated. (Ord. C-5765 § 1 (part), 1981: prior code § 7496.1)

9.38.030 Limitation of access and regulation of use.

The City Manager shall have the authority to designate all or any part or area of any of the offices, buildings, facilities or service yards of the Department of Public Works to which the entry, access, occupancy or use by members of the public is withdrawn or limited as deemed necessary. The City Manager shall establish regulations relating to the entry, access, occupancy or use by members of the public of any such restricted areas of such offices, buildings, facilities or service yards. Such regulations shall be based upon the maintenance and preservation of the public health, safety, peace and welfare and to insure the efficient and effective use of such offices, buildings, facilities or service yards for their intended purposes. A copy of such regulations shall be filed in the office of the City Clerk, and a copy shall be available for inspection by members of the public at the administra-

tive office of the Department of Public Works. (Ord. C 5765 § 1 (part), 1981: prior code § 7496.2)

9.38.040 Signs to be posted.

The City Manager shall cause appropriate signs to be posted in a conspicuous place at or near each entrance to any office, building, facility or service yard of the Department of Public Works where public access has been prohibited or restricted by the City Manager in accordance with Section 9.38.030 of this Code. Such signs shall give notice of the limitations regarding the entry, access, occupancy or use of such premises and shall give notice of the location where a copy of the applicable regulations are available for review by members of the public. (Ord. C 5765 § 1 (part), 1981: prior code § 7496.3)

9.38.050 Certain acts unlawful.

No person shall enter, occupy or use any part or area of any office, building, facility or service yard of the Department of Public Works to which the entry, access, occupancy or use has been withdrawn or limited by the City Manager pursuant to Section 9.38.030 unless a valid pass has been first obtained and is in the immediate possession of such person. The entry into or occupancy or use of any restricted area of the offices, buildings, facilities or service yards of the Department of Public Works without appropriate permission or in violation of any regulation issued pursuant to this Chapter is a misdemeanor. (Ord. C 5765 § 1 (part), 1981: prior code § 7496.4)

9.38.060 Ejectment.

Any policeman or authorized employee of the City may use reasonable force to remove or expel a person from any restricted area of the offices, buildings, facilities or service yards of the Department of Public Works, who is in violation of the provisions of this Chapter or any regulations issued hereunder, and who upon being directed to leave refuses to do so. This provision relating to ejectment is in addition to any other remedies provided by law. (Ord. C 5765 § 1 (part), 1981: prior code § 7496.5)

CHAPTER 9.40 SEIZURE, IMPOUNDMENT AND FORFEITURE OF VEHICLES*

9.40.010 Definitions.

A. "Abate" and "abatement" mean an action to seize, impound, forfeit or otherwise remedy a nuisance related activity or condition by such means and in such manner as is necessary to protect the health, safety or general welfare of the public.

B. "City Prosecutor" shall include any authorized deputy City prosecutors.

C. "Community property" means an interest in property as defined in California Family Code section 760.

D. "Vehicle" means any transportation device as defined in California Vehicle Code section 670.

E. "Prostitution" means engaging in lewd or sexual conduct for money or other consideration and includes all definitions contained in the California Penal Code.

F. "Business day" means a day that Long Beach City Hall is open to conduct public business.

G. As used in this Chapter, "drug activity" means the purchase or possession of any illegal controlled substance as defined in the California Health and Safety Code or the California Penal Code. (Ord. C 7853 § 1, 2003)

9.40.020 Nuisance vehicles.

A. It shall be unlawful to use any vehicle to solicit an act of prostitution or in an attempt to solicit an act of prostitution, or used to engage in an act of prostitution, or to loiter for the purpose of soliciting an act of prostitution, and such vehicle is declared to be a public nuisance and shall be enjoined and abated as provided in this Section.

B. It shall be unlawful to use any vehicle to acquire or in an attempt to acquire a controlled substance, any such vehicle is declared to be a public nuisance and shall be enjoined and abated as provided in this Section. (Ord. C 7853 § 1, 2003)

*Note—Prior history: Prior code §§ 4170, 4170.1, 4170.2.

9.40.030 Seizure of vehicles.

A peace officer may seize a vehicle under the following circumstances:

A. Upon the issuance of a forfeiture order by a court having jurisdiction over the vehicle;

B. Incident to an arrest for any offense related to the illegal activities described in Subsection 9.40.020.A or Subsection 9.40.020.B;

C. Incident to a valid search warrant for any offense related to the illegal activities described in Subsection 9.40.020.A or Subsection 9.40.020.B; or

D. When there is probable cause to believe the vehicle was used in violation of this Chapter. (Ord. C 7835 § 1, 2003)

9.40.040 Title to vest in the City of Long Beach.

Subject to the provisions of this Chapter, all right, title and interest in any vehicle shall vest in the City of Long Beach immediately upon commission of the act giving rise to the public nuisance as described in this Chapter. A vehicle seized shall be impounded for thirty (30) days regardless of ownership and subject to disposition as provided in this Chapter. (Ord. C 7853 § 1, 2003)

9.40.050 Seizure, impoundment and notice.

Except as provided in this Chapter, all vehicles seized shall be impounded for not less than thirty (30) days. If the City prosecutor does not order a vehicle forfeited it shall be released to the registered owner(s), legal owner(s) or to an authorized agent subject to the payment of fees and costs arising from impoundment.

A. Within two (2) business days following the day of seizure of the vehicle, the City of Long Beach shall send notice of seizure and impoundment by certified mail, return receipt requested, to each registered and legal owner of the vehicle at the address obtained from the Department of Motor Vehicles of this State or any other State or appropriate federal agency, informing the registered and legal owner(s) that the vehicle has been seized, impounded and may be subject to forfeiture.

B. If a vehicle is impounded for thirty (30) days and thereafter is not claimed by the registered owner(s), the legal owner(s) or an authorized agent, the City will sell the vehicle at lien sale to recover the towing and storage charges related to impoundment, any parking fines, penalties, and administrative fees.

C. Notwithstanding any other provisions of this Chapter, the registered owner(s) and/or the legal owner(s) shall be responsible for all towing and storage charges related to impoundment, any parking fines, penalties, and administrative fees incurred by the registered owner.

D. The City shall not be liable to the registered owner for the release of the vehicle to the legal owner, or the legal owner's agent, provided the legal owner(s) produces documents demonstrating legal ownership of the vehicle at the time of the release. (Ord. C 7853 § 1, 2003)

9.40.060 Vehicles held as evidence.

A vehicle seized pursuant to this Chapter, where appropriate, may be held as evidence in any proceeding brought by the City Prosecutor or District Attorney. (Ord. C 7853 § 1, 2003)

9.40.070 Forfeiture.

Subject to the provisions of this Chapter, the City Prosecutor may order the forfeiture of a vehicle seized and impounded as follows:

A. An order of forfeiture shall include:

1. A statement by the City Prosecutor declaring the vehicle forfeited to the City;

2. A description of the vehicle;

3. The date and place of seizure;

4. The unlawful act(s) alleged as the basis for forfeiture of the vehicle;

5. Instructions and a form for filing a claim opposing forfeiture;

6. The time limits for filing a claim opposing forfeiture;

7. An estimate of the value of the vehicle.

B. An order of forfeiture shall be served as follows:

1. The order of forfeiture shall be served by personal delivery or certified mail, return receipt requested, upon all registered and legal owners of the vehicle.

2. In the event that a registered or legal owner(s) refuses to accept certified return receipt mail or cannot be personally served, service may be made by substituted service. Substituted service may be accomplished by any one (1) of the following methods:

a. By leaving a copy of the order of forfeiture during usual business hours at the registered or legal owner's business address with the person who is apparently in charge, and by thereafter mailing by first class mail a copy to the registered or legal owner(s) where the copy was left;

b. By leaving a copy of the order of forfeiture at the registered or legal owner's dwelling or usual place of abode, in the presence of a competent member of the household and thereafter mailing by first class mail a copy to the registered or legal owner(s) at the address where the copy was left.

3. If the registered or legal owner(s) lives or is located out of State and will not accept certified return receipt mail, then service may be made by first class mail.

4. If the registered or legal owner(s) cannot be located, or service cannot be effected as set forth in this Subsection B, service may be made by publication in a Long Beach newspaper of general circulation. Service shall be deemed sufficient when it is accomplished pursuant to Government Code section 6063.

C. An order of forfeiture shall be served as soon as practicable, but no later than thirty (30) days following the date the vehicle was seized. If the City prosecutor fails to order the forfeiture of the vehicle within the thirty (30) days, the vehicle shall be released to the registered owner(s), legal owner(s) or an authorized agent at the end of the thirty (30) day impoundment subject to the payment of fees and costs arising from impoundment.

D. If no claim opposing forfeiture is timely filed pursuant to Section 9.40.080, the City Prosecutor shall prepare a written declaration of forfeiture of the vehicle to the City and dispose of the vehicle as provided by this Chapter. A written declaration of forfeiture signed by the City Prosecutor under this Chapter shall be deemed to provide good and sufficient title to the purchaser of the forfeited vehicle. A copy of the declaration of forfeiture shall be mailed to the person listed in the receipt given at the time of seizure and to all registered and legal owners of the vehicle.

E. If a claim opposing forfeiture is timely filed pursuant to Section 9.40.080, then the City Prosecutor may file a petition of forfeiture with the superior court within thirty (30) days of the receipt of the claim(s). The petition of forfeiture shall seek a court order adjudging that the vehicle was used for one (1) or more of the nuisance purposes set forth in this Chapter, that the vehicle is a public nuisance and ordering the vehicle be forfeited, sold, and the proceeds distributed as set forth in this Chapter. A copy of the petition of forfeiture shall be mailed to each person filing a claim opposing forfeiture. (Ord. C 7853 § 1, 2003)

9.40.080 Claim opposing forfeiture.

A. A person opposing an order of forfeiture for a vehicle seized pursuant to this Chapter must file a claim opposing forfeiture.

B. If the order of forfeiture was served by personal or substitute service, the time for filing a claim opposing forfeiture is ten (10) calendar days.

C. If the order of forfeiture was served by publication, the time for filing a claim opposing forfeiture is thirty (30) calendar days from the date of first publication of the order of forfeiture.

D. If the last day to file a claim opposing forfeiture falls on a day that City Hall is closed, then the claim opposing forfeiture must be filed no later than the close of business on the next business day for the City.

E. The provisions of California Code of Civil Procedure section 1013 shall apply to this service of the order of forfeiture pursuant to this Section.

F. Each person filing a claim opposing forfeiture must state what ownership interest they have in the vehicle.

G. All claims opposing forfeiture must be filed with the office of the City Prosecutor, Long Beach City Hall, second floor. (Ord. C 7853 § 1, 2003)

9.40.090 Vehicles not subject to forfeiture.

A. A vehicle is not subject to impoundment or forfeiture and the City shall release a vehicle to

the registered owner or legal owner(s) or to an authorized agent under any of the following circumstances:

1. When the vehicle was a stolen vehicle.

2. When the vehicle is subject to bailment and was driven by an employee of the bailee; such as a parking lot attendant or a garage mechanic.

B. A vehicle is not subject to forfeiture if a community property interest existed in such vehicle prior to the act giving rise to the nuisance under this Chapter and the community property interest owner meets all of the following requirements:

1. The community property interest owner requests release of the vehicle from the City Prosecutor prior to disposal of the vehicle by forfeiture.

2. The community property interest owner submits proof that a community property interest existed prior to the date of the act giving rise to the nuisance to the City Prosecutor.

3. The community property interest owner submits proof to the City Prosecutor that the vehicle is the only vehicle available to them and that the vehicle is one that may be operated with a class C driver's license.

4. The community property interest holder submits proof to the City Prosecutor that he or she, or an authorized driver other than a defendant in any criminal trial arising out of the act giving rise to the nuisance in this Chapter, is properly licensed and that the seized vehicle is properly registered and insured pursuant to the California Vehicle Code.

5. The community property interest holder is not a criminal suspect in a Police investigation of the act giving rise to the nuisance under this Chapter.

6. All towing and storage charges related to the seizure and impoundment and any administrative charges authorized by law are paid.

7. The community property interest owner signs a stipulated vehicle release agreement, in consideration for which the vehicle will not be forfeited. This requirement applies only if the community property interest owner requests release of the vehicle under this Section.

C. A vehicle is not subject to forfeiture if the registered owner(s) or legal owner(s) of the vehicle is a rental car company and at the time of the seizure of the vehicle it was rented for a period of thirty (30) days or less. The rental car company shall pay all towing and storage charges related to the seizure and impoundment and any administrative charges authorized by law.

D. A vehicle is not subject to forfeiture if a domestic partnership existed prior to the act giving rise to the nuisance under this Chapter and the domestic partnership meets all of the following requirements:

1. The domestic partner requests release of the vehicle from the City Prosecutor prior to disposal of the vehicle by forfeiture.

2. The domestic partner submits proof to the City Prosecutor that the domestic partnership was registered with the State of California or the City of Long Beach prior to the date of the act giving rise to the nuisance.

3. The domestic partner submits proof to the City Prosecutor that the vehicle is the only vehicle available to the domestic partnership and that the vehicle is one that may be operated with a class C driver's license.

4. The domestic partner submits proof to the City Prosecutor that he or she is an authorized driver and is not a defendant in any criminal trial arising out of the act giving rise to the nuisance in this Chapter, is properly licensed and that the seized vehicle is properly registered and insured pursuant to the California Vehicle Code.

5. The domestic partner is not a criminal suspect in a Police investigation of the act giving rise to the nuisance under this Chapter.

6. All towing and storage charges related to the seizure and impoundment and any administrative charges authorized by law are paid.

7. The domestic partner signs a stipulated vehicle release agreement, in consideration for which the vehicle will not be forfeited. This requirements applies only if the domestic partner re-

quests release of the vehicle under this Section. (Ord. C 7862 § 1, 2003; Ord. C 7853 § 1, 2003)

9.40.100 Disposal of vehicle and distribution of proceeds.

A. In all cases where vehicles seized pursuant to this Chapter are forfeited to the City, the vehicles shall be sold or otherwise disposed of and the proceeds shall be distributed and appropriated as follows:

1. To any lender, finance company or lien holder with an interest in the vehicle, if any, up to the amount of security interest in the vehicle.

2. Each department of the City that incurred costs related to the seizure, impoundment, forfeiture and disposal of the vehicle shall be reimbursed.

3. All remaining proceeds shall be distributed to a special account established and maintained by the City of Long Beach for local crime prevention programs, neighborhood nuisance abatement efforts, and community development activities that improve the quality of life for the citizens of Long Beach in accordance with criteria to be developed by the City Manager.

4. The funds distributed to a City department pursuant to this Section shall not supplant any funds that would, in the absence of this Section, be made available to support those departments. (Ord. C 7853 § 1, 2003)

CHAPTER 9.42 TRESPASSING*

9.42.010 Prohibited.

No person shall trespass in, upon, on, or across the property of another without the permission and consent of the person in charge or control thereof. The provisions of this Section shall have no application to a trespass committed by any officially authorized peace officer or law enforcement agent when such trespass is committed in the execution of such officer or agent's official duty, nor to any person visiting or calling at the residence or place of business of another person for the purpose of transacting any legitimate business. (Prior code § 4620)

9.42.020 Purpose.

Public safety is declared to require that the uninterrupted operation of certain industries essential to national defense, such as the aircraft manufacturing industry, and of companies or agencies supplying water, gas, electric and other essential services, be protected by preventing the intrusion upon the properties thereof of idle, curious or malicious persons, and of persons whose presence thereon is not necessary, and by prohibiting the loitering about such places by persons capable of inflicting harm or of impeding the operation conducted thereon. This Section is in no way intended to change, alter or amend, nor is it to be construed as changing, altering or amending Section 9.42.010, which Section covers trespassing upon unposted private property. (Prior code § 4620.1(a))

9.42.030 Definitions.

The following terms used in this Chapter, unless the context clearly indicates otherwise, shall have the respective meanings set forth in this Section:

A. "Posted boundary" means a line running from sign to sign, and such line need not conform to the legal boundary or legal description of any lot, parcel or acreage of land, but only the area within the "posted boundary" shall constitute "posted property", except as otherwise provided in Subsection 9.42.040.B.

B. "Posted property" means any property specified in Section 9.42.040 which is posted in a manner provided in Section 9.42.050.

C. "Sign" means a sign affixed not less than three feet (3'), nor more than six feet (6') above the ground at the place of posting as specified in Section 9.42.050, which sign shall consist of wood, metal, or other substantial material, with a face of not less than one (1) square foot in area and upon which, in letters not less than two inches (2") in height, either black against a white background,

*__State law reference__—Provisions on trespassing, Pen. C. § 602.

or white against a black background, or contrasting colors, appear, in addition to such other information as may be placed thereon, the following:

Trespassing-Loitering Forbidden by Law.
(Prior code § 4620.1(b))

9.42.040 Property which may be posted.

Any property may be posted against trespassing and loitering in the manner provided in Section 9.42.050 and thereby become "posted property", subject to the provisions of this Chapter applicable to posted property, if such property consists of, or is used, or is designed to be used, for any one (1) or more of the following:

A. An oil well, oil field, tank farm, refinery, compressor plant, absorption plant, bulk plant, marine terminal, pipeline, pipeline pumping station, or reservoir, or any other plant, structure, or works used for the production, extraction, treatment, handling, storage, or transportation of oil, gas, gasoline, petroleum or any product or products thereof;

B. A gas plant, gas producing well, gas storage station, gas tank, gas meter, gas main, gas holder, gas valve, or regulator station, gas orodant station, gas pipeline, compressor plant or appurtenances, or any other property used in the transmission, storage or distribution of gas;

C. A reservoir, dam, generating plant, receiving station, distributing station, transformer, transmission line, or any appurtenances, used for the storage of water for the generation of hydroelectric power, or for the generation of electricity by water or steam or by any other apparatus or method suitable for the generation of electricity, or for the handling, transmission, reception, or distribution of electric energy;

D. Plant, structures or facilities used for, or in connection with, the rendering of telephone or telegraph service or for radio broadcasting;

E. A water well, dam, reservoir, pumping plant, aqueduct, canal, tunnel, siphon, conduit, or any other structure, facility or conductor for producing, storing, diverting, conserving, treating or conveying, water;

F. The production, storage, or manufacture of munitions, dynamite, black blasting powder, gunpowder, or other explosives;

G. A railroad right-of-way, railroad bridge, railroad tunnel, railroad shop, railroad yard, or other railroad facility;

H. An airport, airplane landing field, a hangar, or any other property used for the manufacture or assembly or repair or testing of aircraft of any type or kind;

I. Any shipyard, drydock or graving dock used for the construction, storage or repair of ships, boats or vessels. (Prior code § 4620.1(c))

9.42.050 Posting method.

Any property described in Section 9.42.040 may be posted against trespassing and loitering in the following manner:

A. By posting signs along or near the exterior boundaries of the area of such property at intervals of not more than three hundred feet (300'), and also at each corner thereof, and, if such property has a definite entrance or entrances thereto, at each such entrance;

B. Any such property, if it consists of poles or towers or appurtenant structures for the suspension of wires or other conductors for conveying electricity or telegraphic or telephonic messages, by affixing a sign upon one (1) or more sides of such poles or towers, but such posting shall render only the pole or tower or appurtenant structure "posted property." (Prior code § 4620.1(d))

9.42.060 Entering on posted property prohibited.

No person shall enter or remain upon any posted property without the written permission of the owner, tenant or occupant in legal possession or control thereof. Every person who so enters or remains upon such posted property without such written permission is guilty of a separate offense for each day during any portion of which he enters or remains upon such posted property. (Prior code § 4620.1(e))

9.42.070 Sign destruction prohibited.

No person shall, without authority, tear down, deface or destroy any sign posted under the provi-

sions of this Chapter. (Prior code § 4620.1(f))

9.42.080 Loitering near posted property prohibited.

No person shall loiter in the immediate vicinity of any posted property; provided, this Section does not prohibit peaceful picketing or any other lawful activity by which the public is informed of the alleged existence of any labor dispute. (Prior code § 4620.1(g))

9.42.090 Exceptions.

This Chapter does not apply to any entry, in the course of duty, of any peace or police officer or other duly authorized public officer, nor does it apply to the lawful use of an established and existing right-of-way for public road purposes, nor does it apply to any public waiting room, dining room, office or other portion of any such structure or premises to which general public access is required in the normal use and operation thereof or where materials are delivered to or received by the public; nor does it prohibit any lawful activity for the purpose of engaging in any organizational effort on behalf of any labor union, agent or member thereof, or of any employee group, or any member thereof, employed, or formerly employed, in any place of business or manufacturing establishment described in this Chapter, or for the purpose of carrying on the lawful activities of labor unions or members thereof; nor does it prohibit any lawful activity for the purpose of investigation of the safety of working conditions on posted property by a representative of a labor union or other employee group who has upon his person written evidence of due authorization of his labor union or employee group to make such investigation. (Prior code § 4620.1(h))

9.42.100 Operating vehicles on private property prohibited.

A. No person shall operate or drive a motor vehicle, motorcycle, mini-bike, trail bike, dune buggy, motor scooter, jeep or other form or motor vehicular transportation upon the private property of another or upon any public property which is not held open to the public for any vehicular use and which is not subject to the provisions of the Vehicle Code of the State.

B. The provisions of this Section shall not apply to emergency vehicles, governmental agencies or to persons driving upon such property with the written consent of the owner or person in lawful possession of such property or to the owner himself, his family, employees, agents or lessees. (Prior code § 4620.2)

9.42.110 Camping prohibited in certain areas—Exceptions.

A. Unless otherwise provided, it shall be unlawful for any person to camp on public property (including rights-of-way), whether improved or unimproved, whether inside or outside a vehicle, between the hours of ten p.m. of one (1) day and five a.m. of the next day, except public property designated for overnight camping.

B. This Section is in no way intended to change, alter or amend, nor is it to be construed as changing, altering or amending Section 9.42.010.

C. For the purposes of this Section, the term "camp" shall mean the use of tents or other temporary shelters, or non-city designated cooking facilities.

D. A violation of this Section shall constitute a misdemeanor; except that any such violation may, in the discretion of the City Prosecutor, be charged and prosecuted as an infraction. (Ord. C-7103 § 1, 1993: Ord. C-6984 § 1, 1992)

CHAPTER 9.46 FLOOD CONTROL FACILITIES

9.46.010 Use permit required.

No person, municipality, or district shall interfere with, destroy, or use in any manner whatsoever any levee, embankment, channel, dam, reservoir, rain, or stream gauges, telephone line, piling, fence or other stream protection work constructed by or on behalf of any public agency without a written permit therefor from the Council, which permit shall be revocable whenever in the opinion of the Council the public interest and welfare

require the revocation thereof. No permit to use any flood control protection work or rights-of-way owned or constructed by the Los Angeles County Flood Control District shall be effective unless written permit so to do has also been obtained from the Board of Supervisors of the district. (Prior code § 4612)

9.46.020 Obstruction prohibited.

No person, municipality, or district shall place or cause to be placed in the channel or bed of any river, stream, wash, or arroyo, or upon any property over which the Los Angeles County Flood Control District has an easement for flood control purposes duly recorded in the office of the County Recorder, any wires, fence, building or other structure, or any refuse, rubbish, tin cans or other matter that may impede, retard, or change the direction of the flow of water in such river, stream, wash, or arroyo, or that will catch or collect debris carried by such water, or that is placed where the natural flow of the storm and floodwaters would carry the same downstream to the damage and detriment of either private or public property adjacent to said river, stream, wash, arroyo, or channel. (Prior code § 4612.1)

PART VII. OFFENSES BY OR AGAINST MINORS

CHAPTER 9.52 FIREARMS*

9.52.010 Sale of ammunition prohibited.

No person as principal, agent or otherwise, shall sell, exchange, give or loan any BB shot, pellet, or other missile designed or intended for use in any spring gun, air gun, air pistol or other pistol or gun, or any cartridge, shell or other device containing any explosive and designed or intended for use in any gun, revolver, pistol, or firearm of any description to any person under the age of eighteen (18) years. (Prior code § 4180.5)

9.52.020 Possession prohibited.

No person, as principal, agent or otherwise, under the age of eighteen (18) years, shall have in his or her possession, care, custody or control, any gun, revolver, pistol, spring gun, air gun or firearm of any description, or any cartridge, shell or other device containing any explosive, and designed or intended for use in any gun, revolver, pistol or firearm of any description, or any explosive ammunition of any description whatsoever. (Prior code § 4180.7)

***State law reference—**Provisions on weapons and minors, Pen. C. §§ 12550—12552.

CHAPTER 9.54 DRUG PARAPHERNALIA

9.54.010 Allowing minors in sales room.

No owner, manager, proprietor or other person in charge of any place of business selling, or displaying for the purpose of sale, any device, contrivance, instrument or paraphernalia for smoking or injecting, or consuming marijuana, hashish, PCP, or any controlled substance, as defined in the Health and Safety Code of the State, other than prescription drugs and devices to ingest or inject prescription drugs, as well as roach clips and cigarette papers and rollers designed for the smoking of the foregoing, shall allow or permit any person under the age of eighteen (18) years to be, remain in, enter or visit such room unless such minor person is accompanied by one (1) of his or her parents, or by his or her legal guardian. (Ord. C-5671 § 1, 1981: prior code § 4180.9)

9.54.020 Minor presence in sales room.

A person under the age of eighteen (18) years shall not be, remain in, enter or visit any room in any place used for the sale, or displaying for sale, devices, contrivance, instruments or paraphernalia for smoking or injecting marijuana, hashish, PCP, or any controlled substance, other than prescription drugs and devices to ingest or inject prescription drugs, including roach clips and cigarette papers and rollers designed and used for smoking the foregoing, unless such person is accompanied by one (1) of his or her parents, or his or her legal guardian. (Ord. C-5671 § 2, 1981: prior code § 4180.9.1)

9.54.030 Segregation and signposting of sales rooms.

A person shall not maintain in any place of business to which the public is invited, the display

for sale, or the offering to sell, of devices, contrivances, instruments or paraphernalia for smoking or injecting marijuana, hashish, PCP, or any controlled substance, other than prescription drugs and devices to ingest or inject prescription drugs, including roach clips and cigarette papers and rollers designed and used for smoking the foregoing, unless within a separate room or enclosure to which minors not accompanied by a parent or legal guardian are excluded. Each entrance to such a room shall be signposted in reasonably visible and legible words to the effect that narcotic paraphernalia are being offered for sale in such a room and minors, unless accompanied by a parent or legal guardian, are excluded. (Ord. C-5671 § 3, 1981: prior code § 4180.9.2)

9.54.040 Violation—Nuisance.

The distribution or possession for the purpose of sale, exhibition, or display in any place of business from which minors are not excluded as set forth in this Section, and where devices, contrivances, instruments or paraphernalia for smoking or injecting marijuana, hashish, PCP, or any controlled substance, other than prescription drugs or devices to ingest or inject prescription drugs, including roach clips and cigarette papers and rollers designed and used for smoking the foregoing, is declared to be a public nuisance, and may be abated pursuant to the provisions of Section 731 of the Code of Civil Procedure of the State. This remedy is in addition to any other remedy provided by law, including the penalty provisions applicable for violation of the terms and provisions of this Code. (Ord. C-5671 § 4, 1981: prior code § 4180.9.3)

CHAPTER 9.56 PRESSURIZED PAINT CONTAINERS

9.56.010 Sale or purchase prohibited.

It is unlawful for any person to sell, exchange, give or loan, or cause or permit to be sold, exchanged, given or loaned, any pressurized can containing any substance commonly known as paint or dye to anyone under the age of eighteen (18) years, unless such person is the parent or legal guardian of said minor. It is unlawful for anyone under the age of eighteen (18) years to purchase any pressurized can containing paint or dye. (Ord. C-5458 § 1 (part), 1978: prior code § 4630)

9.56.020 Possession restricted.

Between the hours of six p.m. and six a.m. it is unlawful for any person under the age of eighteen (18) to have in his possession any pressurized can containing any substance commonly known as paint or dye while on any public highway, street, alley or way, park, playground, swimming pool, or other public place, whether such person is or is not in any automobile, vehicle or other conveyance. (Ord. C-5458 § 1 (part), 1978: prior code § 4630.1)

9.56.030 Possession prohibited in public parks and buildings.

It is unlawful for any person to have in his possession any pressurized can containing any substance commonly known as paint or dye while in any public park, playground, swimming pool, recreational facility (other than a highway, street, alley or way), except authorized employees of the City or an individual or authorized employee of an individual or company under contract with the City. (Ord. C-5458 § 1 (part), 1978: prior code § 4630.2)

9.56.040 Storage requirements.

Any business or establishment offering for sale to the public pressurized or aerosol paint containers shall keep, store and maintain such pressurized or aerosol paint containers in a place that is locked and secured or otherwise not directly accessible to the public. (Ord. C-6770 § 1, 1990)

CHAPTER 9.57 MARKING PENS AND ETCHING TOOLS

9.57.010 Sale or purchase prohibited.

A. No person shall sell or cause to be sold to any person under the age of eighteen (18) years any marking pen with a tip exceeding four (4) millimeters (four twenty-fifths of an inch) in size

and containing anything other than a solution which can be removed with water after the solution dries.

B. No person shall sell or cause to be sold to any person under the age of eighteen (18) years any etching tool capable of defacing property.

C. Evidence of majority may be established by a document issued by the federal government or a State, County or municipal government including but not limited to a motor vehicle operator's license, a registration certificate issued under the Selective Service Act, a passport or an identification card issued to a member of the Armed Forces which identifies an individual and provides proof of the age of such individual. (Ord. C-6770 § 2 (part), 1990)

9.57.020 Storage requirements.

Any business or establishment offering for sale to the public marking pens or etching tools regulated by this Chapter shall keep, store and maintain such marking pens and etching tools in a place that is locked and secured, or otherwise not directly accessible to the public. (Ord. C-6770 § 2 (part), 1990)

9.57.030 Possession prohibited in streets and other public places.

No person under the age of eighteen (18) years shall have in his or her possession any marking pen or etching tool regulated by this Chapter while on any public street or alley or in any other public place unless such person is accompanied by a parent or guardian. (Ord. C-6770 § 2 (part), 1990)

CHAPTER 9.58 LOITERING

9.58.010 Prohibition against juvenile being in public place between the hours of ten p.m. until six a.m. the following day.

A. Curfew. It is unlawful for any minor under the age of eighteen (18) years to remain in or upon any "public place," as defined in Section 9.02.090, between the hours of ten p.m. until six a.m. the following day.

B. Exceptions. The provisions of Subsection A of this Section shall not apply when:

1. The minor is accompanied by his or her parent, guardian or other adult person having the care and custody of the minor;

2. The minor is on an errand at the direction of the minor's parent or guardian, without any detour or stop;

3. The minor is in a motor vehicle involved in interstate travel;

4. The minor is engaged in an employment activity, or going to or returning home from an employment activity, without any detour or stop;

5. The minor is involved in an emergency requiring immediate action to prevent serious bodily injury or loss of life;

6. The minor is on the sidewalk abutting the minor's residence;

7. The minor is attending an official school, religious, or other recreational activity supervised by adults and sponsored by the City, a civic organization, or another similar entity that takes responsibility for the minor, or the minor is going to or returning home from, without any detour or stop, an official school, religious, or other recreational activity supervised by adults and sponsored by the City, a civic organization, or another similar entity that takes responsibility for the minor;

8. The minor is exercising First Amendment rights protected by the United States Constitution;

9. The minor is emancipated pursuant to law.

C. Enforcement. Before taking any enforcement action under this Section, a Police Officer shall ask the apparent offender's age and reason for being in the public place. The officer shall not issue a citation or make an arrest under this Section unless the officer reasonably believes that an offense has occurred and that, based on any response and other circumstances, no exception under Subsection B of this Section is present. (Ord. C-7488 § 1, 1997: Ord. C-6503 § 1, 1988: Ord. C-5938 § 1, 1983)

9.58.020 Prohibition against juvenile being in public place between the hours of eight-thirty a.m. until one-thirty p.m.

A. Curfew. It is unlawful for any minor under the age of eighteen (18) years, who is subject to compulsory education or to compulsory continuing education, to remain in or upon any "public place," as defined in Section 9.02.090 of this Code, between the hours of eight-thirty a.m. until one-thirty p.m. on days when such minor's school is in session.

B. Exceptions. The provisions of Subsection A of this Section shall not apply when:

1. The minor is accompanied by his or her parent, guardian or other adult person having the care and custody of the minor;

2. The minor is on an emergency errand at the direction of the minor's parent or guardian, without any detour or stop;

3. The minor is in a motor vehicle involved in interstate travel;

4. The minor is engaged in an employment activity, or going to or returning home from an employment activity, without any detour or stop;

5. The minor is involved in an emergency requiring immediate action to prevent serious bodily injury or loss of life;

6. The minor is going or coming to or from a medical appointment;

7. The minor has permission to leave campus for lunch or other school-related activity and has in his or her possession a valid, school-issued, off-campus permit;

8. The minor is attending an official school, religious, or other recreational activity supervised by adults and sponsored by the City, a civic organization, or another similar entity that takes responsibility for the minor, or the minor is going to or returning home from, without any detour or stop, an official school, religious, or other recreational activity supervised by adults and sponsored by the City, a civic organization, or another similar entity that takes responsibility for the minor;

9. The minor is exercising First Amendment rights protected by the United States Constitution;

10. The minor is emancipated pursuant to law;

11. The minor is not required by his or her school vacation, track or curriculum schedule to be in school.

C. Enforcement. Before taking any enforcement action under this Section, a Police Officer shall ask the apparent offender's age and reason for being in the public place. The officer shall not issue a citation or make an arrest under this Section unless the officer reasonably believes that an offense has occurred and that, based on any response and other circumstances, no exception under Subsection B of this Section is present. (ORD-06-0025 § 1, 2006: Ord. C-7386 § 1, 1996)

CHAPTER 9.60 REGULATION OF SEXUALLY EXPLICIT MATERIALS

9.60.010 Definitions.

For purposes of this Chapter, the following definitions shall apply:

"Amusement machine" means the following apparatus operated by or for a patron or patrons for amusement, diversion or sport in exchange for financial or other valuable consideration: pinball machines; electronic or video games; shuffleboard games; mini-motion picture projectors; screens and structures; public video projectors, screens, stalls and structures; and the like.

"Explicit sexual act" means any depiction of sexual intercourse, anal intercourse, oral copulation, sodomy, bestiality or masturbation, whether actual or simulated.

"Knowingly" means knowing that any publication, by virtue of its apparent character, outward appearance or contemporary County-wide reputation, would cause the average adult to reasonably know or suspect that the publication depicts on the cover, or contains therein, sexually explicit material.

"Minor" means any natural person under eighteen (18) years of age.

"Person" means any individual, partnership, firm, association, corporation or other legal entity.

"Publication" means a book, magazine, newspaper or other publication or any matter containing photographs or pictorial representations.

"Sexual organ" means any of the anatomical parts of a person's genitals or anus.

"Sexually explicit material" means any photograph or pictorial representation which depicts sexual organs or explicit sexual acts when to the average adult such photograph or pictorial representation has as its primary purpose or effect sexual arousal, gratification or affront. (Ord. C-6101 § 1 (part), 1984)

9.60.020 Display to minors.

No person shall, for commercial purposes, knowingly display, cause to be displayed or permit to be displayed in any business where an amusement machine is open to use by minors any publication which depicts sexually explicit material unless such publication is stored in a display case, having a sliding glass door, or other substantially similar case, cabinet or device in which the publication would be entirely enclosed. Such publication shall also be displayed in such a manner as to prevent any of its sexually explicit material from being readily viewed by any minor.

A minor shall not be given access to any display case, cabinet or device which contains sexually explicit publications and shall not be permitted to purchase such sexually explicit publications at a location subject to this Chapter. (Ord. C-6101 § 1 (part), 1984)

9.60.030 Display in separate room.

The provisions of Section 9.60.020 requiring a display case, cabinet or device shall not apply if sexually explicit publications are displayed in a separate room or segregated area where minors are prohibited and where sexually explicit material cannot readily be viewed by a minor from outside such room or area. (Ord. C-6101 § 1 (part), 1984)

9.60.040 Exception.

Where minors are accompanied by a parent or guardian, they may be given access to a display case containing sexually explicit publications or be permitted into a separate room or segregated area where sexually explicit publications are displayed and from where minors would otherwise be prohibited. (Ord. C-6101 § 1 (part), 1984)

9.60.050 Penalty.

Any person who violates any provision of this Chapter is guilty of a misdemeanor. (Ord. C-6101 § 1 (part), 1984)

9.60.060 Severability.

If any section, subsection, sentence, clause or phrase of this Chapter is for any reason held illegal, invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions thereof. The City Council declares that it would have passed this ordinance codified in this Chapter, and each section, subsection, sentence, clause and phrase thereof even though any one (1) or more sections, subsections, sentences, clauses or phrases be declared illegal, invalid or unconstitutional. (Ord. C-6101 § 1 (part), 1984)

CHAPTER 9.61 SOCIAL HOST REGULATIONS

9.61.010 Purpose and intent.

A. The purpose and intent of this Chapter are:

1. To facilitate the enforcement of laws prohibiting the service to and consumption of alcoholic beverages by minors as well as to deter the service to and consumption of alcoholic beverages by minors, and to promote the reduction of underage drinking;

2. To protect public health, safety, general welfare and quiet enjoyment of property and properties neighboring the location of gatherings at which minors are served and consume alcoholic beverages;

3. To establish a duty of persons twenty-one (21) years of age or older having control over any premises, who knowingly hosts, permits or allows a gathering at the premises, to take reasonable steps to prevent the service and consumption of alcoholic beverages by minors;

4. To provide opportunities for education and behavior modification to first-time offenders violating this Chapter;

5. To provide recovery of law enforcement and/or fire response costs. (ORD-14-0001, § 1, 2014)

9.61.020 Definitions.

For purposes of this Chapter, the following terms shall have the following meanings:

A. "Adult" shall mean a person who is twenty-one (21) years of age or older.

B. "Alcohol" shall mean ethyl alcohol, hydrated oxide of ethyl, or spirits of wine, from whatever source or by whatever process produced.

C. "Alcoholic Beverage" includes alcohol, spirits, liquor, wine, beer, and every liquid or solid containing alcohol, spirits, wine, or beer, and which contains one-half (½) of one percent (1%) or more of alcohol by volume and which is fit for beverage purposes either alone or when diluted, mixed, or combined with other substances.

D. "Control" shall mean any form of dominion including ownership, tenancy or other possessory right.

E. "Gathering" shall mean a party, gathering, or event where a group of two (2) or more persons have assembled or are assembling for a social occasion or social activity.

F. "Legal Guardian" shall mean:

1. A person who, by court order, is the guardian of the person of a minor, or

2. A public or private agency with whom a minor has been placed by a court of competent jurisdiction.

G. "Minor" shall mean any person less than twenty-one (21) years of age.

H. "Parent" means a person who is a natural parent, adoptive parent, foster parent, or stepparent of another person.

I. "Enforcement Services" shall mean the salaries and benefits of police officers or other code enforcement officers for the amount of time actually spent in responding to or in remaining at the residence or premises and the administrative costs attributable to the incident, the actual cost of any medical treatment to injured police officers or other code enforcement officers as a result of injuries suffered in responding to or in remaining at the residence or premises, the cost arising from the use of any City equipment in responding to or remaining at the residence or premises, and the cost of repairing any damaged City equipment or property used in responding to or in remaining at the residence or premises.

J. "Residence" or "Premises" shall mean a house, yard, apartment, condominium, or other dwelling unit, a hotel or motel room, or a hall or meeting room, whether occupied on a temporary or permanent basis, whether occupied as a dwelling or for living space or for a party, meeting, or other social function or gathering, and whether owned, leased rented, or used with or without compensation. (ORD-14-0001, § 1, 2014)

9.61.030 Prohibition on hosting, permitting or allowing a gathering at which minors consume alcoholic beverages.

It is unlawful for any adult to host, permit or allow a gathering to take place at the premises where one (1) or more minors consumes an alcoholic beverage, whenever such adult either:

A. Intentionally serves or causes to be served an alcoholic beverage to a minor for consumption; or

B. Knows or reasonably should have known that a minor possesses or has consumed an alcoholic beverage and thereafter fails to immediately take appropriate action to prevent further possession or consumption of alcoholic beverages by any minor.

C. This Section shall not apply to any location or place regulated by the California Department of Alcohol and Beverage Control.

D. The provisions of this Chapter shall not apply to legally protected religious ceremonies.

E. Law enforcement officers shall have the discretion of writing violators a warning prior to an official citation. (ORD-14-0001, § 1, 2014)

9.61.040 Recovery of response costs.

When a law enforcement, fire, or other emergency response provider responds to a gathering at a premises at which there is service to, or consumption of alcohol or alcoholic beverages by a minor(s), all responsible persons shall be jointly and severally liable for the City's costs of responding to the gathering. (ORD-14-0001, § 1, 2014)

9.61.050 Penalty for violations.

A. Any violation of this Chapter shall be subject to enforcement in accordance with the administrative citation and penalties of Chapter 9.65.

B. Any violation of this Chapter shall be subject to prosecution as a misdemeanor or infraction by the City Prosecutor's Office in accordance with the provisions of Section 1.32.010. (ORD-14-0001, § 1, 2014)

9.61.060 Severability.

In the event any portion of Chapter 9.61 is deemed to be unenforceable, or is in conflict with applicable law, the remainder of Chapter 9.61 will be enforced and will remain in full force and effect. (ORD-14-0001, § 1, 2014)

PART VIII. WEAPONS

CHAPTER 9.62 FIREARMS DISCHARGE*

9.62.010 Permit required.

No person shall shoot or discharge any gun, compressed air gun, rifle, pistol, or other firearm without first having obtained a written permit from the Chief of Police so to do; provided, however, that nothing contained in this Section shall apply to the shooting or discharging of any gun, pistol or other firearm by any Police Officers or other law enforcement agent in the discharge of his or her official duties, nor to the discharge or shooting of firearms in any licensed shooting gal-

***State law reference—**Provisions on the discharge of firearms, Pen. C. § 246.

lery, target or other gun or rifle range or any theatrical performance or exhibition. (Prior code § 4130.5)

CHAPTER 9.64 PROHIBITED WEAPONS*

9.64.010 Use of whips, ticklers or throwing confetti.

It is declared to be a nuisance, unlawful and a misdemeanor to use whips and ticklers, or any such devices, or to throw confetti in any public places as defined in this Title. (Prior code § 4130.8)

9.64.020 Slingshots or catapults.

No person shall use or have in his possession any catapult, slingshot or other device capable of throwing stones, shot or metal slugs. This Section shall not apply to amusement games or exhibitions carried on under permit from the City. Any such devices taken from any person unlawfully possessing the same are declared to be nuisances and shall be subject to confiscation and summary destruction under direction of the Police Department. (Prior code § 4130.10)

PART IX. ENFORCEMENT

CHAPTER 9.65 ADMINISTRATIVE CITATIONS AND PENALTIES†

9.65.010 Legislative findings and statement of purpose.

A. Enforcement of the Long Beach Municipal Code throughout the City is an important public service. Code enforcement is vital to the protection of the public's health, safety, welfare and quality of life. The City Council recognizes that a comprehensive code enforcement system that uses a combination of administrative and judicial remedies helps to gain compliance with Code regulations.

B. The overburdening of the criminal court system has necessitated the alternative use of an administrative citation program to more effectively adjudicate the majority of nuisance related Code violations. An administrative citation program and the establishment of appropriate fines are intended to act as a reasonable deterrent in preventing violations of the Long Beach Municipal Code.

C. The City Council hereby finds that there is a need for an alternative method of enforcement of the Municipal Code in accordance with the City's constitutional police power. The City Council further finds that an appropriate method of enforcement is the imposition of administrative penalties as independently authorized by both California Constitution Article XI, Section 7, and Government Code, Section 53069.4.

D. The procedures established in this Chapter shall be in addition to any criminal, civil or other legal remedy established by law for violation of the Municipal Code.

E. The City Council hereby finds and determines that enforcement of the Long Beach Municipal Code pursuant to the City's police power is a matter of public health, safety and welfare and serves important public purposes. The City of Long Beach adopts this administrative citation and penalty program in order to achieve the following goals and objectives:

1. To protect the public health, safety and welfare of the citizens of the City.

2. To gain compliance with the Municipal Code in a timely and efficient manner.

3. To provide for an administrative process to appeal the imposition of administrative citations and fines.

4. To provide a method to hold parties responsible when they fail or refuse to comply with the provisions of the Municipal Code.

5. To avoid and/or minimize the expense and delay of enforcement in the civil or criminal justice system.

***State law reference**—Provisions on the control of deadly weapons, Pen. C. § 12000 et seq.

†**Editor's note**—ORD-09-0022, § 6 adopted Aug. 4, 2009, amended Ch. 9.65 in its entirety to read as herein set out. Former Ch. 9.658, §§ 9.65.010—9.65-200 pertained to similar subject matter and derived from ORD-05-0001, § 2, 2005; ORD-06-0012, § 6, 2006; and ORD-07-0047, §§ 1, 2, 2007.

F. Use of this Chapter shall be at the sole discretion of the City, subject to Subsection D of this Section.
(ORD-09-0022, § 6, 2009)

9.65.020 Definitions.

A. "Canopy structure" means and includes freestanding exterior shade structures that consist of a cover made from canvas, fabric, plastic, rubber, nylon, acetate or other pliable material that is fitted over a freestanding metal frame.

B. "Cited party" means a legally responsible person who has been issued an administrative citation.

C. "City" means the City of Long Beach.

D. "Continuing violation" means any condition or activity in violation of the Municipal Code that continues beyond the date given in the administrative citation to correct the violation.

E. "Correction period" means that period of time in which responsible persons are required to correct or otherwise remedy the violation(s)

F. "Enforcement officer" shall mean any officer or employee of the City designated with the authority to enforce the applicable provisions of the Long Beach Municipal Code.

G. "Hearing Officer" means an individual who has been designated by the City Manager to adjudicate administrative citation appeals.

H. "Highway" means a way or place of whatever nature, publicly maintained and open to the use of the public for purposes of vehicular travel. Highway includes street.

I. "Inoperative vehicle" shall include:

1. Any vehicle, by which any person or property may be propelled, moved, or drawn upon a highway, except a device moved by human power, which is not currently and validly registered for operation or use on the streets and highways in the State as required under the provisions of the California Vehicle Code; or

2. Any motor vehicle which currently is incapable of being driven under its own motor power; or

3. Any nonmotor vehicle which currently is incapable of being moved or drawn.

J. "Lot" means an area of land, parcel or tract, whether improved or unimproved, the boundaries of which have been established in conformance with the State Subdivision Map Act, and which has either been recorded via a final tract map or certificate of compliance on record with the Los Angeles County Recorder.

K. "Lot cleaning levy" means all computed expenses incurred by the City in removal of weeds and/or debris, from any lot, and shall consist of processing fees, incidental enforcement costs, including, but not limited to, actual expenses for weeds and/or debris removal charged to the cited party.

L. "Responsible person" means any individual who is the owner, partial owner, or occupant of real property, last registered owner and/or legal owner of a vehicle, the holder or the agent of the holder of any permit or entitlement, or the party or agent of a party to any agreement covered by this Chapter; or the owner or authorized agent of any business, company or entity subject to this Chapter, who creates, commits or maintains a violation subject to the enforcement provisions of this Chapter.

M. "Vehicle removal levy" means all computed expenses incurred by the City in the removal of inoperative vehicle(s) from public or private property within the City, and shall consist of processing fees, incidental enforcement costs, including, but not limited to, land and vehicle title search information, and actual expenses incurred for inoperative vehicle removal, impoundment or disposal.

N. "Weeds" and/or "debris" means and includes all bushes, vines, trees, grass or other vegetation, whether cultivated or uncultivated, and whether dead or growing, and all refuse, trash and rubbish of any kind or description, or wood, asphalt, concrete or similar materials, tin cans, parts of machinery, implements and automobiles, any of which cause unpleasant or noxious odors, or which are, or may become, a refuge or breeding place for insect and vermin, or which conceal or are capable of concealing filth and other unsanitary conditions, or which are, or are capable of

becoming, a fire or other hazard to the use and occupancy of property, or which obstruct or hinder the use of any public street, sidewalk, alley or way. (ORD-09-0022 § 6, 2009)

9.65.030 Weed abatement activity.

It shall be the duty of all responsible persons to at all times keep lots clean and free from weeds and/or debris. (ORD-09-0022 § 6, 2009)

9.65.040 Inoperative vehicle activity.

It shall be the duty of responsible persons to prevent accumulation and storage of abandoned, wrecked, dismantled or inoperative vehicles or parts thereof, except for those vehicles or parts thereof exempted pursuant to Long Beach Municipal Code, Section 10.46.030. (ORD-09-0022 § 6, 2009)

9.65.050 Prohibited canopy structure.

Canopy structure as defined in Subsection 9.65.020.A may not:

A. Be located in residential front or side yard setback areas, or driveway areas used for automobile parking;

B. Have a setback of less than four feet (4′) from the side and rear property lines;

C. Be maintained in a manner that is defective, unsightly or in a condition of deterioration; or

D. Be greater than ten feet (10′) in height. (ORD-09-0022 § 6, 2009)

9.65.060 Issuance of administrative citation.

A. Any responsible person who violates any provision of Titles 3, 5, 8, 9, 10, 14, 18 and 21, or Chapter 2.63, of the Long Beach Municipal Code may be issued an administrative citation, pursuant to this Chapter, by an enforcement officer designated to issue such citations.

B. Each and every day a violation exists constitutes a separate and distinct offense.

C. A civil fine shall be assessed by means of an administrative citation issued by the enforcement officer and shall be payable directly to the City of Long Beach.

D. Fines shall be assessed for Code violations committed by the same responsible person as follows:

1. A fine for each initial violation, in an amount established by the City Council by resolution;

2. A fine for each instance of a second violation of the same Code section within one (1) year from the date of the first violation, in an amount established by the City Council by resolution;

3. A fine for each additional violation of the same Code section within one (1) year from the date of the first violation, in an amount established by the City Council by resolution;

4. A fine for each violation of Municipal Code, Section 21.41.170 illegal garage conversions, 18.02.050 for dangerous buildings, 18.08.010 for certificates of occupancy, 18.09.010 for failure to comply with Title 18, and/or Subsection 21.31.245.C unlawful dwelling units, in an amount established by the City Council by resolution; and

5. A fine for each violation of Municipal Code, Section 21.51.227 relating to illegal automotive work, in an amount established by the City Council by resolution. (ORD-15-0038 § 2, 2015; ORD-11-0012 § 3, 2011; ORD-09-0022 § 6, 2009)

9.65.070 Service procedures.

An administrative citation on a form approved by the City Manager may be served upon any responsible person by an enforcement officer in the following manner:

A. Personal service. In any case where an administrative citation is issued:

1. The enforcement officer shall attempt to locate and personally serve the responsible person(s) and obtain the signature of the responsible person(s) on the administrative citation;

2. If the responsible person(s) refuses or fails to sign the administrative citation, the failure or refusal to sign shall not affect the validity of the administrative citation or any subsequent proceedings.

B. Service of citation by posting notice. If the enforcement officer does not succeed in personally serving a responsible person(s):

1. The enforcement officer shall post the administrative citation or duplicate thereof in a con-

spicuous place on the lot where the violation(s) exists or has occurred, and such posting shall be deemed effective service;

2. Any posted notice shall be photographed on the date of posting by the enforcement officer, and a proof of service of the notice shall be made by declaration of the enforcement officer effecting the service.

C. Service of citation by mail. If the enforcement officer does not succeed in personally serving a responsible person(s), in addition to posting notice:

1. The administrative citation or duplicate thereof shall be mailed to the responsible person(s) at his or her residence or place of business by depositing the same in the United States Mail, postage prepaid as first class mail;

2. A proof of service of the notice shall be made by declaration of the enforcement officer effecting the service. (ORD-09-0022 § 6, 2009)

9.65.080 Contents of notice.

Each administrative citation shall contain the following information:

A. The date of service of the citation and the date, time, address or description of the location where the violation(s) was observed.

B. The Code section(s) and condition(s) violated and a description of the violation(s)

C. An order to the responsible person(s) to correct the violation(s) no later than the specified correction date.

D. An explanation of the consequences of failure to correct the violation(s) in a timely manner.

E. The amount of the fine for the violation(s).

F. An explanation of how the fine shall be paid and the fine payment due date.

G. Notice of the right to appeal the citation, the time within which the citation may be appealed and the place to obtain a request for hearing form to appeal the administrative citation.

H. The name and signature of the enforcement officer and, if obtained, the signature(s) of the responsible person(s). (ORD-09-0022 § 6, 2009)

9.65.090 Satisfaction of administrative citation.

Upon service of an administrative citation, the cited party shall do the following:

A. Remedy the violation(s) no later than thirty (30) days from the date of issuance of the citation as specified on the administrative citation. Correcting the violation(s) shall not excuse or discharge payment of the fine.

B. Pay the fine no later than thirty (30) days from the date of issuance of the citation as specified on the administrative citation. Payment of a fine shall not excuse or discharge the failure to correct the violation(s), nor shall it bar further enforcement action by the City. Late charges shall be imposed for fine payments made after the fine payment due date. The late charge shall be calculated at a rate of twenty-five percent (25%) of the fine, and will be imposed in addition to any outstanding fine. (ORD-09-0022 § 6, 2009)

9.65.100 Appeal of administrative citation.

A. Any recipient of an administrative citation may appeal said citation by completing a written request for hearing form, obtained as directed on the citation, and returning it to the department, indicated on the citation, within thirty (30) calendar days from the date the administrative citation is served or deemed to have been served, together with a deposit in the total amount of the fine and any late charges.

B. A failure to file a timely appeal of the administrative citation shall be deemed a waiver of the right to appeal and to seek judicial review. (ORD-09-0022 § 6, 2009)

9.65.110 Appeal hardship waiver.

A. Any person who intends to appeal the administrative citation and who is financially unable to make the advance deposit as required in Section 9.65.100 may request an advance deposit hardship waiver by completing a written deposit waiver form obtained as directed on the citation.

B. The deposit waiver request form shall be filed together with the appeal in the department indicated on the citation within thirty (30) calendar days from the date the administrative citation is served or deemed to have been served.

C. The deposit requirement as described in Subsection 9.65.100.A shall be stayed unless or until the Director of the department indicated on the citation, or his/her designee, makes a determination regarding the waiver request.

D. The Director of the department indicated on the citation, or his/her designee, may waive the requirement of an advance deposit only if the cited party submits to the Director, or his/her designee, a statement under penalty of perjury, together with any supporting documents or materials, demonstrating to the satisfaction of the Director, or his/her designee, the cited party's actual financial inability to deposit with the City the full amount of the fine and late charge(s) in advance of the hearing.

E. If the Director of the department indicated on the citation, or his/her designee, declines to issue a waiver, the cited party shall remit the full deposit to the City within ten (10) calendar days of the date of that decision or thirty (30) calendar days from the date the administrative citation is served or deemed to have been served, whichever is later.

F. The Director of the department indicated on the citation, or his/her designee, shall issue a written determination listing the reasons for his/her determination to issue or not issue the hardship waiver. The written determination shall be final.

G. The written determination of the Director, or his/her designee, shall be served personally or by first class mail, postage prepaid, upon the cited party who applied for the hardship waiver. (ORD-09-0022, § 6, 2009)

9.65.120 Hearing procedure.

A. No hearing to appeal an administrative citation shall be held unless and until a request for hearing form has been completed and submitted, as indicated on the citation, and the deposit has been paid, or a hardship waiver has been issued.

B. A hearing before the Hearing Officer shall be set for a date not sooner than fifteen (15) calendar days and not more than sixty (60) calendar days from the date the request for hearing is completed and submitted in accordance with the provisions of this Chapter. The cited party requesting the hearing shall be notified in writing of the time and place set for the hearing at least ten (10) calendar days prior to the date of the hearing.

C. The Hearing Officer shall only consider evidence that is relevant to whether the violation(s) occurred and whether the cited party has created, committed, or maintained the violation(s). Courtroom rules of evidence shall not apply. Relevant hearsay evidence and written reports may be admitted whether or not the speaker or author is present to testify, if the Hearing Officer determines that such evidence is reliable. Admission of evidence and the conduct of the hearing shall be controlled by the Hearing Officer in accordance with the fundamentals of due process. The Hearing Officer may set reasonable limits on the length of the hearing, and shall allow the appellant at least as much time to present his/her case as is allowed to the City.

D. The cited party contesting the administrative citation shall be given the opportunity to testify and present witnesses and evidence concerning the administrative citation. The City's case shall be presented by any person designated by the City Manager. The appellant and City may be represented by counsel.

E. The failure of the appellant to appear at the hearing shall constitute a forfeiture of the fine and a failure to exhaust administrative remedies.

F. The administrative citation and any additional documents prepared by the City in connection with the violation(s) may be submitted and shall constitute prima facie evidence of the respective facts contained in those documents.

G. If the enforcement officer or his/her designee submits any additional documents concerning the administrative citation to the Hearing Officer for consideration at the hearing, then, whenever possible, a copy of such document(s)

shall be served by mail on the appellant at least five (5) calendar days prior to the date of the hearing.

H. The Hearing Officer may continue the hearing or request additional information from the enforcement officer, his/her designee or the appellant prior to issuing a written decision. (ORD-09-0022, § 6, 2009)

9.65.130 Hearing Officer's decision.

A. After considering all of the testimony and evidence submitted at the hearing, the Hearing Officer shall issue a written decision within fifteen (15) business days of the hearing. The decision of the Hearing Officer shall be final.

B. If the Hearing Officer denies the appeal, then the deposit shall be retained by the City.

C. If the Hearing Officer grants the appeal, then the City shall refund the deposit within thirty (30) business days from the date of the final written decision.

D. The appellant and City shall each be served with a copy of the Hearing Officer's written decision. (ORD-09-0022, § 6, 2009)

9.65.140 Failure to pay fines.

A. The failure of the cited party to pay a civil fine or late penalty in a timely manner may result in the imposition of a special assessment and/or lien against the real property on which the violation occurred, after which the amount so determined shall bear interest at the rate of twelve percent (12%) per annum until paid, and/or filing of an action with the Small Claims Court for recovery of the fine and late penalty. The only issue to be adjudicated by the Small Claims Court shall be whether or not the fines and possible late fees were paid. A cited party may only obtain judicial review of the validity of the citation by first requesting and participating in an administrative hearing before a Hearing Officer. In the Small Claims Court action, the City may also recover its costs, according to proof.

B. The City may also refuse to issue, extend or renew to any cited party who has unpaid delinquent fines, interest, penalties, liens or assessments, any City permit, license, entitlement or other City approval pertaining to the lot that is the subject of the fine and administrative citation.

C. Any permit, license, entitlement or land use approval issued by the City may be subject to suspension or revocation of the permit, license, entitlement, or land use approval in accordance with the procedures set forth in this Title 9 and Titles 3, 5, 6, 8, 10, 14, 18 and 21 of the Long Beach Municipal Code if any unpaid fine, interest or penalties remain delinquent for a period of more than thirty (30) days. (ORD-11-0012, § 4, 2011; ORD-09-0022, § 6, 2009)

9.65.150 Failure to remedy weed abatement activity.

In the event a responsible person(s) is cited for violation of weed abatement, pursuant to Section 9.65.030 of this Chapter, and fails to correct the violation within the specified correction period, and also fails to file a timely appeal of the administrative citation as set forth in Section 9.65.100 of this Chapter, in addition to fine(s), late charges, and consequences resulting from failure to pay fines as defined in this Chapter, a lot cleaning levy shall also be imposed. A lot cleaning levy payment notice shall be served upon the cited party in the same manner as provided for service of the administrative citation set forth in Section 9.65.070 of this Chapter. (ORD-09-0022, § 6, 2009)

9.65.160 Failure to remedy inoperative vehicle activity.

In the event a responsible person(s) is cited for violation of inoperative vehicles pursuant to Section 9.65.040 of this Chapter, and fails to correct the violation within the specified period and also fails to file a timely appeal of the administrative citation as set forth in Section 9.65.100 of this Chapter, in addition to fine(s), late charges, and consequences resulting from failure to pay fines as defined in this Chapter, a vehicle removal levy shall also be imposed. A vehicle removal levy payment notice shall be served upon the cited party in the same manner as provided for service of the administrative citation set forth in Section 9.65.070

of this Chapter. (ORD-09-0022 § 6, 2009)

9.65.170 Appeal of lot cleaning and inoperative vehicle levy.

A. Any recipient of lot cleaning or inoperative vehicle levy payment notice may appeal the reasonableness of the computed charges by completing a levy hearing request form and returning it to the department indicated on the administrative levy notice within fifteen (15) calendar days from the date the levy notice was served, together with a deposit in the total amount of the administrative citation fine, late charges and levy.

B. A hearing on the appeal shall be set for a date that is not sooner than fifteen (15) calendar days and not more than sixty (60) calendar days from the date that the request for hearing is completed and submitted in accordance with the provisions of this Chapter. The person requesting the hearing shall be notified in writing of the time and place set for the hearing at least ten (10) calendar days prior to the date of the hearing.

C. The Hearing Officer shall only consider evidence that is relevant to whether the costs used to compute the levy are reasonably related to abatement costs incurred by the City. Courtroom rules of evidence shall not apply. Relevant hearsay evidence and written reports may be admitted whether or not the speaker or author is present to testify if the Hearing Officer determines that such evidence is reliable. Admission of evidence and the conduct of the hearing shall be controlled by the Hearing Officer in accordance with the fundamentals of due process. The Hearing Officer may set reasonable limits on the length of the hearing, and shall allow the appellant at least as much time to present its case as is allowed the City.

D. The cited party contesting the reasonableness of the levy shall be given the opportunity to testify and present witnesses and evidence concerning the computed cost. The appellant and City may be represented by counsel.

E. The administrative citation and any additional documents prepared by the City in connection with the levy may be submitted and shall constitute prima facie evidence of the respective facts contained in those documents.

F. In the event additional documents concerning the levy are provided to the Hearing Officer for consideration, whenever possible, a copy of such document(s) shall be served by mail on the appellant at least five (5) calendar days prior to the date of the hearing.

G. The Hearing Officer may continue the hearing or request additional information from the City or the appellant prior to issuing a written decision.

H. After considering all of the testimony and evidence submitted at the hearing, the Hearing Officer shall issue a written decision within fifteen (15) business days of the hearing.

I. The appellant and the City shall each be served by mail with a copy of the Hearing Officer's written decision.

J. If the Hearing Officer determines that the levy was properly computed, and should be upheld as reasonable, then the entire deposit with the City shall be retained by the City.

K. In the event the Hearing Officer determines the levy, or any portion thereof, to be unreasonable, then that amount shall be refunded within fifteen (15) business days of the date of the written determination.

L. The failure of the appellant to appear at the hearing shall constitute a forfeiture of the entire deposit and a failure to exhaust administrative remedies.

M. A failure to file a timely appeal shall be deemed a waiver of the right to appeal the levy. (ORD-09-0022 § 6, 2009)

9.65.180 Dismissal of citation.

The enforcement officer, with the approval of the Director from the department indicated on the citation, or his/her designee, may dismiss an administrative citation at any time if it is determined to have been issued in error, in which event any deposit will be refunded. (ORD-09-0022 § 6, 2009)

9.65.190 Right to judicial review.

A. Either the City or the appellant aggrieved by a decision of a Hearing Officer on an administrative citation or levy, may obtain review of the

decision by filing a petition for review with the Los Angeles Superior Court in accordance with the time lines and provisions as set forth in California Government Code, Section 53069.4(b). Said procedure shall be available for all judicial review under this Chapter, notwithstanding that the term or condition being enforced pursuant to this Chapter may not be a matter covered by Section 53069.4(a). Judicial review of a citation shall not be available unless all administrative remedies have been exhausted as provided in this Chapter.

B. Failure to receive any notice specified in this Chapter does not affect the validity of proceedings conducted hereunder. (ORD-09-0022 § 6, 2009)

9.65.200 Recovery of Code enforcement abatement costs.

A. The administrative citation process described in this Chapter does not preclude the City from recovering any other Code violation or nuisance abatement costs incurred by the City in performing its Code enforcement efforts.

B. Fees and Services Provided. Code enforcement service fees and/or code enforcement expenses conducted to abate violations of the Long Beach Municipal Code are as set forth in the schedule of fees and charges established by City Council resolution.

C. The payment of code enforcement fees and/or abatement expenses by the City shall not exempt any person, firm or corporation from compliance with this code nor from any penalty prescribed by law. (ORD-26-0004 § 6, 2026; ORD-09-0022 § 6, 2009)

9.65.210 Failure to remedy violations - recordation.

A. In the event a responsible person(s) is cited for any provision of Titles 3, 5, 8, 9, 10, 14, 18, 21, and 22, or Chapter 2.63 of the Long Beach Municipal Code, and fails to correct the violation within the specified period, and also fails to prevail on an appeal of the administrative citation as set forth in Section 9.65.100 of this Chapter, in addition to fine(s), late charges, and consequences resulting from failure to pay fines as defined in this Chapter, a Notice of Violation may also be recorded against title. A recordation of a Notice of Violation shall be served upon the cited party via service by first class mail and Certified Mail and by posting on the property. If for any reason, the City is unable to mail a violation to the cited person, posting the notice at the property shall be deemed sufficient notice.

B. The City may, at its discretion and for its own reasons, terminate a recordation of violation recorded under section 9.65.210. Such termination may be done, without limitation:

a. Upon determination by the Building Official that the violation has been corrected;

b. Upon determination by the Building Official that terminating the recordation furthers a legitimate City interest; or

c. By agreement between an interested party and the Building Official providing that an interested party has or will obtain the right to remedy the violation and agrees to do so.

C. If the City terminates a recordation of violation and the violation persists or re-occurs, the City may re-record the violation in accordance with section A, above.

D. These provisions are additional to any other enforcement action the City may take in accordance with the Municipal Code, state law, or other authorizing law. (ORD-26-0004 § 28, 2026)

CHAPTER 9.66 SEX OFFENDER RESIDENCY RESTRICTIONS*

9.66.010 Definitions.

For purposes of this Chapter only, and unless the context clearly requires a different meaning, the words, terms and phrases set forth in this Section are defined as follows:

A. "Duplex" shall mean a residential land use for a building containing two (2) dwelling units.

***Editor's note**—ORD-16-0014 § 1, adopted June 21, 2016, amended Ch. 9.66 in its entirety to read as herein set out. Former Ch. 9.66, §§ 9.66.010—9.66.120, pertained to similar subject matter and derived from: ORD-08-0004 § 1 (part), 2008; and ORD-08-0036 § 1, adopted Dec. 2, 2008.

B. "Hotel/Motel" shall mean a commercial land use for the rental of six (6) or more guest rooms or suites for primarily temporary residency for a period of not more than thirty (30) consecutive days.

C. "Inn" shall mean a commercial land use for the rental of five (5) or fewer guest rooms or suites primarily for temporary residency for a period of not more than thirty (30) consecutive days.

D. "Knowingly" shall mean with knowledge of the existence of the facts in question. Knowledge of the unlawfulness of any act or omission is not required.

E. "Multi-family Dwelling" shall mean a building designed for permanent residency for three (3) or more families living independently of each other. This does not include hotels, motels, or inns.

F. "Owner's Authorized Agent" shall mean any natural person, firm, association, joint venture, joint stock company, partnership, organization, club, company, corporation, business trust or the manager, lessee, agent, servant, officer or employee authorized to act for the owner of real property.

G. "Permanent Resident" shall mean any person who, as of a given date, obtained a legal right to occupy or reside in a Duplex, Multi-family Dwelling, Single Family Dwelling, Hotel, Motel or Inn for a period of more than thirty (30) consecutive days.

H. "Property Owner" shall mean the owner of record of any parcel of real property as designated on the county assessor's tax roll, or a holder of a subsequently recorded deed to the property and shall include any part owner, joint owner, tenant, tenant in common, or joint tenant, of the whole or a part of such real property.

I. "Responsible Party" shall mean the Property Owner and/or the Owner's Authorized Agent.

J. "Sex Offender" means any person convicted of a crime on or after the effective date of this ordinance, for which registration is required pursuant to Section 290 of the California Penal Code.

K. "Single Family Dwelling" means one (1) permanent residential dwelling located on a single lot. For purposes of this Chapter, Single Family Dwelling shall not include any State licensed residential facility which serves six (6) or fewer persons.

L. "Temporary Resident" means any person who, as of a given date, obtained a legal right to occupy or reside in a Duplex, Multi-family Dwelling, Single Family Dwelling, hotel, motel or inn for a period of thirty (30) consecutive days or less. (ORD-16-0014 § 1, 2016)

9.66.020 Sex offender prohibition - Single Family Dwellings.

A sex offender shall be prohibited from becoming a Permanent or Temporary Resident in a Single Family Dwelling if said dwelling is already occupied by a sex offender, unless the other person is legally related by blood, marriage or adoption. (ORD-16-0014 § 1, 2016)

9.66.030 Sex offender prohibitions - Duplex and Multi-family Dwellings.

A sex offender shall be prohibited from becoming a Permanent or Temporary Resident in a Duplex and/or Multi-family Dwelling unit if said dwelling unit is already occupied by a sex offender, unless the other person is legally related by blood, marriage or adoption. (ORD-16-0014 § 1, 2016)

9.66.040 Sex offender prohibition - Hotel/Motel/Inn Rooms.

A sex offender shall be prohibited from becoming a Permanent or Temporary Resident in a Hotel, Motel, or Inn guest room if said guest room is already occupied by a sex offender, unless the other person is legally related by blood, marriage or adoption. (ORD-16-0014 § 1, 2016)

9.66.050 Responsible party prohibition - Single Family Dwellings.

A Responsible Party shall be prohibited from knowingly renting or leasing a Single Family Dwelling to more than one sex offender during any given period of tenancy, unless those persons are legally related by blood, marriage or adoption. (ORD-16-0014 § 1, 2016)

9.66.060 Responsible party prohibitions - Duplex and Multi-family Dwellings.

A Responsible Party shall be prohibited from knowingly renting or leasing an individual unit within a Duplex and/or Multi-family Dwelling to more than one sex offender during any given period of tenancy, unless those persons are legally related by blood, marriage or adoption. (ORD-16-0014 § 1, 2016)

9.66.070 Responsible party prohibitions - Hotel/Motel/Inn.

A Responsible Party shall be prohibited from knowingly renting or leasing an individual guest room in a Hotel, Motel, or Inn to more than one (1) sex offender, unless those persons are legally related by blood, marriage or adoption. (ORD-16-0014 § 1, 2016)

9.66.080 Criminal penalties.

Any person who violates any provision of this Chapter is guilty of a misdemeanor subject to the penalties set forth in Section 1.32.010 of this Code. (ORD-16-0014 § 1, 2016)

9.66.090 Criminal penalties do not satisfy administrative or civil actions.

Neither the arrest, prosecution, conviction, imprisonment, or payment of a fine for a criminal violation of Chapter 9.66 shall satisfy or diminish the authority of the City to commence civil or criminal proceedings under applicable Civil, Penal or Municipal Code provisions as an alternative or in addition to the proceedings set forth in this Chapter. (ORD-16-0014 § 1, 2016)

9.66.110 Civil actions.

A. Civil actions include, but are not limited to, injunctive relief and civil and/or administrative actions or proceedings as defined in State law and local ordinances.

B. Any person required to comply with the provisions of this Chapter shall be liable in a civil action filed by the City in any court of competent jurisdiction in order to enforce such provision and to pay reasonable abatement costs incurred by the City and costs of the suit as a court may deem appropriate, including any and all attorney fees incurred by the City in the prosecution of said enforcement action. (ORD-16-0014 § 1, 2016)

Title 10

VEHICLES AND TRAFFIC

Chapter 10.02 Definitions

10.02.010 Generally.
10.02.020 Central traffic district.
10.02.030 Curb mailbox mailing zone.
10.02.040 Holidays.
10.02.050 Loading zone.
10.02.060 Official time standard.
10.02.070 Parking meter.
10.02.080 Parking meter space.
10.02.090 Parking meter zones.
10.02.100 Parkway.
10.02.110 Passenger loading zone.
10.02.120 Police Officer.
10.02.125 Preferential parking district.
10.02.130 Road tractor.
10.02.140 Scramble system automatic signal.
10.02.145 Sidewalk.
10.02.150 Stop.
10.02.160 Vehicle Code.

Chapter 10.04 Administration

10.04.010 City Traffic Engineer—Division established.
10.04.020 City Traffic Engineer—Duties.
10.04.030 Police and Fire Department authority.
10.04.040 Public Service Department authority.
10.04.050 Parking control checker authority.
10.04.060 Planning and Building Department authority.

Chapter 10.06 Violation Notices

10.06.010 Authorized—Contents.
10.06.020 Signing notice required.
10.06.030 Compliance by counsel.
10.06.040 Failure to appear deemed separate offense.

Chapter 10.08 Traffic-Control Devices

10.08.010 Installation authority.

10.08.020 Required for enforcement.
10.08.030 Obedience required.
10.08.040 Installation.
10.08.050 Lane markings.
10.08.060 Roadway markings.
10.08.070 Removal or discontinuation permitted.
10.08.080 Hours and days of operation.
10.08.090 Temporary signs and barriers.
10.08.100 Department signs and barriers.
10.08.110 Traffic control on City-owned property.
10.08.120 Automatic traffic-control intersections.
10.08.130 Continuation of existing traffic regulations.

Chapter 10.10 Turning Movements

10.10.010 Placement of markers.
10.10.020 Restricted turn signs—Authorized.
10.10.030 Restricted turn signs—Obedience.
10.10.040 Right turn against stop signal prohibition authorized.
10.10.050 Left turn against stop signal prohibition authorized.

Chapter 10.12 Speed Limits

10.12.010 Speed limits increased.
10.12.020 Speed limits decreased.
10.12.030 Speed limits decreased on narrow streets.
10.12.040 Speed limits on street segments adjacent to playgrounds.

Chapter 10.14 One-Way Streets and Alleys

10.14.010 Establishment.
10.14.020 Designated.

Chapter 10.16 Streets Closed Adjacent to Schools

10.16.010 Fifty-Third Street near Jane Addams School.
10.16.020 Caspian Avenue near Garfield School.
10.16.030 Marron Avenue near St. Barnabas School.
10.16.040 Linden Avenue near St. Athanasius School.

Chapter 10.18 Vehicles Restricted From Streets

10.18.010 Vehicles prohibited in central traffic district.
10.18.020 Animal-drawn vehicles prohibited in central traffic district.
10.18.030 Advertising vehicles prohibited in central traffic district.

10.18.040 Living in vehicles prohibited.
10.18.050 Mobile billboard advertising vehicle prohibited.

Chapter 10.20 Special Stops

10.20.010 Designation of stop intersections.
10.20.020 Through streets declared.
10.20.030 Stop intersections designated.
10.20.040 Emerging from alley, driveway or building.
10.20.050 Yield intersections.
10.20.060 Through streets enumerated.

Chapter 10.22 Parking—Regulations

10.22.010 Applicability.
10.22.020 Parkways and sidewalks.
10.22.025 Parking in front of private driveways.
10.22.030 Storing vehicles on streets prohibited.
10.22.040 Parking on one-way streets.
10.22.050 Parking space precedence.
10.22.060 Places parking is prohibited.
10.22.070 Blocking wheels on hill.
10.22.080 Parking vehicles for sale.
10.22.090 Mobile vendor parking prohibited area.
10.22.100 Parking adjacent to commercial gutters or depressed curbs.
10.22.110 Fire lanes.
10.22.120 Temporary parking restrictions.
10.22.130 Seventy-two hour parking limit.
10.22.140 Parking prohibited at certain times for street sweeping.
10.22.150 Repairing vehicle on streets.
10.22.160 Parking on private property.
10.22.180 Parking of vehicles near intersections.
10.22.182 Parking regulations within public housing projects.
10.22.184 Pilot program establishing left curb parking in designated areas.

Chapter 10.24 Parking—Restrictions

10.24.005 Definitions.
10.24.010 Angle parking.
10.24.030 Stopping prohibited where posted—Compliance required.
10.24.050 Parking prohibited where posted—Compliance required.
10.24.055 School street parking prohibited—Compliance required.

10.24.060 Exclusive Parking for Mobile Food Facilities on Public Rights of Way.
10.24.075 Parking of unattached trailers prohibited.
10.24.076 Reserved.
10.24.077 Posting of restrictions.
10.24.078 Parking of Oversized Vehicles prohibited.
10.24.079 Designation and termination of Oversized Vehicle parking restrictions in nonresidential areas.
10.24.080 Oversized Vehicle seventy-two (72) hour parking permit for residential streets.
10.24.081 Oversized Vehicle Disability Parking Permit.
10.24.090 Limited time parking.
10.24.130 Parking space markings.
10.24.140 Designated parking areas on certain streets.
10.24.150 Motorcycle only parking areas.

Chapter 10.25 Motor Vehicle Alarms

10.25.010 Motor vehicle alarms—Violations—Penalties.

Chapter 10.26 Stopping While Loading or Unloading

10.26.010 Yellow, white or green curb markings.
10.26.020 Red curb markings.
10.26.030 Stopping in alley.
10.26.040 Bus stop marking.
10.26.050 Warning lights while obstructing street.

Chapter 10.28 Parking Meters

10.28.010 Definitions.
10.28.020 Installation of metered parking spaces and parking meters.
10.28.030 Operation of parking meters.
10.28.040 Parking method.
10.28.050 Payment for metered parking space.
10.28.060 Unlawful to occupy a metered parking space without paying for parking.
10.28.070 Unlawful to use or possess a proof of parking ticket purchased by another.
10.28.075 Unlawful to extend time limits.
10.28.080 Prohibited use of parking meter.
10.28.090 Evidence of payment.
10.28.100 Purpose of compensation.
10.28.110 Payment collection.
10.28.120 Demonstration program—Multi-space meters.
10.28.130 Parking meter zones established—Rates set by resolution.

Chapter 10.30 Beach Area Parking Lots

10.30.010 Designated—Definitions.
10.30.020 Parking fees—Required—Exceptions.
10.30.030 Parking fees—Amount and manner of collection.
10.30.040 Parking fees—Period not applicable.
10.30.050 Special regulations—Parking time limits.
10.30.060 Special regulations—Method of parking.
10.30.070 Special regulations—Seventy-two-hour parking limit.
10.30.080 Special regulations—Prohibition against overnight parking in designated lots.
10.30.090 Special regulations—Prohibition against overnight parking of certain vehicles.
10.30.100 Special regulations—Prohibition against camping.
10.30.110 Special regulations—Buses and vehicles of excessive length.
10.30.120 Special regulations—Vehicles with trailers.
10.30.121 Special regulations—Speed limit.
10.30.122 Special regulations—Parking permits.
10.30.123 Special regulations—Driving in beach area parking lots.

Chapter 10.32 Preferential Residential Parking

10.32.010 Purpose.
10.32.020 Designation and termination of districts.
10.32.030 Permits—Issuance.
10.32.040 Permit—Application and term.
10.32.050 Permit—Fee.
10.32.060 Permits—Display.
10.32.070 Permits—Revocation or fine for misuse.
10.32.080 Sign posting.
10.32.090 Enforcement hours/overnight parking prohibited.
10.32.100 Parking privileges for permit holders.
10.32.110 Areas designated.
10.32.120 Violations designated.
10.32.150 Rules and regulations.

Chapter 10.33 Temporary Construction Preferential Parking District

10.33.010 Purpose and intent.
10.33.020 Administration.
10.33.030 Designation and termination of Temporary Construction Preferential Parking Districts.
10.33.040 Posting of signs.
10.33.050 Issuance of permits.

10.33.060 Violations designated.

Chapter 10.34 Parking for Handicapped Persons in Public Places

10.34.005 Prior designation by action of City Council.
10.34.010 Spaces on streets—Designation.
10.34.015 City Traffic Engineer authorized to designate disabled parking on public streets.
10.34.020 Parking for disabled persons reserved for vehicles with appropriate license plates or placards.
10.34.025 Application for disabled parking designation.
10.34.030 Off-street parking spaces—Designation.
10.34.040 Parking at City-owned and operated lots with Disabled Person or DP plate or placard.

Chapter 10.36 Parking for Handicapped Persons in Private Off-Street Facilities

10.36.010 Purpose.
10.36.020 Request for designation required.
10.36.030 Posting of notices and signs.
10.36.040 Facilities enumerated.

Chapter 10.38 Miscellaneous Driving Rules

10.38.010 Driving through funeral processions.
10.38.020 Driving on sidewalks.
10.38.030 Driving on new pavement.
10.38.040 Use of Ravenna Drive Bridge by commercial vehicles prohibited.
10.38.050 Limited access roadway.
10.38.060 Freeways—Designated.
10.38.070 Freeways—Use restricted.
10.38.080 Walks closed to vehicles.
10.38.090 Streets closed to vehicles.
10.38.100 Seasonal street closures.
10.38.110 Commercial vehicle parking on residential streets designated as truck routes.
10.38.111 Commercial vehicle parking on State highways located in residential areas.
10.38.120 Reserved.
10.38.130 Exclusive bus lanes.
10.38.140 Off-street parking—Exemption from parking fee.

Chapter 10.40 Truck Routes

10.40.010 Establishment.
10.40.020 Truck routes for transportation of explosives.
10.40.030 Enumerated.

Chapter 10.41 Use of Streets by Overweight Vehicles

10.41.010 Definitions.
10.41.020 Special permit required.
10.41.030 Designated streets.
10.41.040 Authority to issue special permit.
10.41.050 Application required.
10.41.060 Special permit conditions.
10.41.070 Revocation of permit.
10.41.080 Rules and regulations.
10.41.090 Display and special permit.
10.41.100 Other permits.

Chapter 10.42 Driving on Flood Control Structures

10.42.010 Driving on flood control structures prohibited.
10.42.020 Exemption.
10.42.030 Highways excluded.

Chapter 10.44 White Canes

10.44.010 Use restricted.
10.44.020 Duties of drivers and pedestrians.

Chapter 10.46 Abandoned Vehicles

10.46.010 Declared nuisance.
10.46.020 Definitions.
10.46.030 Exemptions.
10.46.040 Regulations nonexclusive.
10.46.050 Administration and enforcement.
10.46.060 Towing contractor authority.
10.46.070 Removal—Required.
10.46.080 Removal—Notice to property and vehicle owner.
10.46.090 Removal—Hearing.
10.46.100 Removal—Authorized when.
10.46.110 Removal—Notice to State.
10.46.120 City removal—Authorized.
10.46.121 Owner's responsibility for enforcement costs.
10.46.130 City removal of vehicle—Levy computation.
10.46.140 City removal of vehicle—Payment notice.
10.46.150 Hearing on charges.
10.46.160 Interest on charges.

10.46.170 Transfer of collection.
10.46.180 Method of collection.
10.46.190 Tax—Sold property.
10.46.200 Tax—Sold property—Redemptions.
10.46.210 Error correction—Assessment cancellation.

Chapter 10.48 Bicycles

10.48.010 Bicycle defined.
10.48.020 Traffic laws applicable.
10.48.030 Emerging from alley, driveway or building.
10.48.040 Riding in a group.
10.48.050 Parking.
10.48.060 Path use.
10.48.070 Riding on sidewalks.
10.48.080 Signaling device required.
10.48.090 Penalty.
10.48.100 Signs.
10.48.110 Repealed.

Chapter 10.49 Prohibition on Repairs and Sales of Bicycles and Bicycle Parts on Public Property

10.49.010 Repairs and sales on public property prohibited.
10.49.020 Exceptions.
10.49.030 Severability.

Chapter 10.50 Bicycle Registration

10.50.010 Definitions.
10.50.020 Destruction or alteration prohibited.
10.50.030 Dealer reports.
10.50.040 Enforcement.

Chapter 10.51 Electrically Motorized Boards

10.51.010 Definition.
10.51.020 Prohibited—Sign posting.
10.51.030 Prohibited—Designated areas.
10.51.040 Use of EMBs by persons with disabilities.
10.51.050 Prohibited—Areas enumerated.
10.51.060 Penalty.

Chapter 10.52 Rollerskating

10.52.010 Definitions.

10.52.020 Prohibited—Sign posting.
10.52.030 Prohibited—Designated areas.
10.52.040 Prohibited—Areas enumerated.

Chapter 10.54 Skateboards

10.54.010 Skateboard defined.
10.54.020 Prohibited—Sign posting.
10.54.030 Prohibited—Designated areas.
10.54.040 Prohibited—Areas enumerated.

Chapter 10.56 Vehicle Overloads

10.56.010 Applicability.
10.56.020 Statutes applicable.
10.56.030 Permit—Issuance.
10.56.040 Permit—Application.
10.56.050 Liability for damage.
10.56.060 Costs responsibility.

Chapter 10.58 Pedestrians

10.58.010 Crosswalks—Establishment.
10.58.015 Crosswalks—Removal.
10.58.020 Crossing without crosswalk.
10.58.030 Reserved.
10.58.040 Walking on roadway prohibited.
10.58.050 Safety zone designation.
10.58.060 Crosswalks—Installation.

Chapter 10.60 School Buses

10.60.010 Definitions.
10.60.020 Inspection certificate required.
10.60.030 Driver's certificate required.
10.60.040 Insurance.

Chapter 10.62 Public Transportation

10.62.010 Talking with operator—Prohibited.
10.62.020 Talking with operator—Warning notice.
10.62.030 Smoking prohibited—Where.
10.62.040 Smoking prohibited—Sign.

Chapter 10.64 Enforcement

10.64.010 Traffic direction.
10.64.020 Emergency vehicles exempt.
10.64.030 Traffic direction compliance.

Chapter 10.66 Control of Vehicular Cruising

10.66.010 Cruising prohibited.
10.66.020 Cruising defined.
10.66.030 Elements of the offense.
10.66.040 Exemptions.
10.66.050 Designated streets.
10.66.060 Penalty.

Chapter 10.68 Adult Crossing Guards

10.68.010 Initiative ordinance.

Chapter 10.69 Parking Restricted to Senior Citizens

10.69.010 Purpose.
10.69.020 Spaces in off-street parking facilities—Designation.
10.69.030 Parking restricted to senior citizens—Enumerated.
10.69.040 Unauthorized use prohibited.
10.69.050 Permit—Issuance.
10.69.060 Permit—Display.
10.69.070 Permit—Revocation.

Chapter 10.70 Golf Cart Crossing Zones

10.70.010 Establishment.
10.70.020 Golf cart crossing zones—Enumerated.
10.70.030 Right-of-way.

Chapter 10.71 Shared Micromobility Device Program

10.71.010 Purpose.
10.71.020 Definitions.
10.71.030 Administrative regulations.
10.71.040 Prohibited conduct.
10.71.050 Maximum number of shared micromobility operator permits and shared micromobility devices permitted.
10.71.060 Shared micromobility operator permit application procedure, fees and requirements.
10.71.070 Shared micromobility operator selection.
10.71.080 Limitations on City liability.

10.71.090 Grounds for revocation, suspension or denial.

10.71.100 Impoundment of devices.

10.71.110 Enforcement.

Chapter 10.80 Toledo Bridge Over Rivo Alto Canal

10.80.010 Purpose.

10.80.020 Scope.

10.80.030 Violations.

Chapter 10.81 Ravenna Bridge Over Rivo Alto Canal

10.81.010 Purpose.

10.81.020 Scope.

10.81.030 Violations.

Chapter 10.82 Spectators Prohibited at Street Races, Sideshows, and Reckless Driving Exhibitions

10.82.010 Definitions.

10.82.020 Spectators Prohibited at Street Races, Sideshows, and Reckless Driving Exhibitions; News Reporters.

10.82.030 Violations and Admissible Evidence.

CHAPTER 10.02 DEFINITIONS*

10.02.010 Generally.

Whenever any words or phrases used in this Title are not defined in this Chapter, but are defined in the Vehicle Code of the State such definitions are incorporated in this Chapter and shall be deemed to apply to such words and phrases as though set forth in this Chapter in full. The words and phrases in this Chapter, when used in this Title, shall, for the purpose of this Title, have the meanings respectively ascribed to them in this Chapter. (Prior code § 3410.1 (part))

10.02.020 Central traffic district.

"Central traffic district" means all that area bounded and described as follows:

Beginning at the point of the intersection of the prolongation of the westerly line of Pacific Avenue with the southerly line of Ocean Boulevard; thence northerly along the westerly line of Pacific Avenue and Pacific Avenue West to the northerly line of Seventh Street; thence easterly along the northerly line of Seventh Street to the easterly line of Elm Avenue; thence southerly along the easterly line of Elm Avenue to the southerly line of Ocean Boulevard, and thence westerly along the southerly line of Ocean Boulevard to the point of beginning. (Prior code § 3410.1 (part))

10.02.030 Curb mailbox mailing zone.

"Curb mailbox mailing zone" means the space adjacent to a curb reserved for the exclusive use of vehicles during the period necessary for any occupant to deposit mail in a curb mailbox placed and signed for this purpose. (Prior code § 3410.1 (part))

10.02.040 Holidays.

Within the meaning of this Chapter, holidays shall be defined as follows:

A. January 1, known as "New Year's Day";

B. The third Monday in January, known as "Dr. Martin Luther King Day";

C. The third Monday in February, known as "Presidents Day";

D. The last Monday in May, known as "Memorial Day";

E. July 4, known as "Independence Day";

F. The first Monday in September, known as "Labor Day";

G. Thanksgiving Day;

H. The day after Thanksgiving Day; and

I. December 25, known as "Christmas Day". (ORD-18-0014 § 1, 2018; ORD-09-0021 § 1, 2009; Prior code § 3410.1 (part))

10.02.050 Loading zone.

"Loading zone" means the space adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers or materials. (Prior code § 3410.1 (part))

10.02.060 Official time standard.

Whenever certain hours are named in this Title, they shall mean standard time or daylight saving time, as may be in current use in this City. (Prior code § 3410.1 (part))

10.02.070 Parking meter.

"Parking meter" means any mechanical device which, when the mechanism thereof is set in motion, indicates unexpired parking time for the vehicle parked adjacent thereto. (Prior code § 3410.1 (part))

10.02.080 Parking meter space.

"Parking meter space" means a parking space of sufficient size to permit the parking of one (1) vehicle only adjacent to a parking meter within a parking meter zone. (Prior code § 3410.1 (part))

10.02.090 Parking meter zones.

"Parking meter zones" means portions of streets, or City-owned or leased land, upon which the parking of vehicles is regulated with the aid of parking meters. (Prior code § 3410.1 (part))

10.02.100 Parkway.

"Parkway" means the area adjacent to a roadway between the private property line and the

*State law reference—Provisions on definitions, Veh. C. § 100 et seq.

roadway, or the area between the roadways of a highway as are set apart for pedestrian travel. (Ord. C-5398 § 1, 1978; prior code § 3410.1 (part))

10.02.110 Passenger loading zone.

"Passenger loading zone" means the space adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers. (Prior code § 3410.1 (part))

10.02.120 Police Officer.

"Police Officer" means every officer of the Police Department of this City, and any officer authorized to direct or regulate traffic or to make arrests for violations of traffic regulations. (Prior code § 3410.1 (part))

10.02.125 Preferential parking district.

"Preferential parking district" means a district formed pursuant to the provisions of Chapter 10.32 of this Title 10 for the purposes set forth in Section 10.32.010. As used in Chapter 10.32, "district" means a preferential parking district as defined in this Section. (Ord. C-6588 § 3, 1989)

10.02.130 Road tractor.

"Road tractor" means a motor vehicle designed and used for drawing other vehicles, and not so constructed as to carry any load thereon independently of any part of the weight of a vehicle or load so drawn. (Prior code § 3410.1 (part))

10.02.140 Scramble system automatic signal.

"Scramble system automatic signal" means that type of intersection signal control that provides a pedestrian signal interval during which time pedestrians are permitted to walk across all intersecting streets in the crosswalks, and diagonally across the intersection, and during which interval all vehicular traffic is stopped at the approaches to the intersection. (Prior code § 3410.1 (part))

10.02.145 Sidewalk.

"Sidewalk" is that portion of any highway or street, other than the roadway, set apart by curbs, barriers, concrete, markings or other delineation for pedestrian travel. (Ord. C-6158 § 3, 1985)

10.02.150 Stop.

"Stop" means complete cessation of movement. (Prior code § 3410.1 (part))

10.02.160 Vehicle Code.

"Vehicle Code" means the Vehicle Code of the State of California. (Prior code § 3410.1 (part))

CHAPTER 10.04
ADMINISTRATION*

10.04.010 City Traffic Engineer—Division established.

There is established in the Engineering Department of this City a Traffic Engineering Division. This Division shall be administered by the City Traffic Engineer, who shall be directly responsible to the City Engineer. The City Traffic Engineer shall exercise all the powers and duties imposed upon him by the ordinances of the City. (ORD-09-0021, § 2, 2009; Prior code § 3410.2)

10.04.020 City Traffic Engineer—Duties.

It shall be the general duty of the City Traffic Engineer to plan and coordinate all Traffic Engineering functions of the City; to arrange for the installation, operation and maintenance of traffic control devices, such as traffic signs, traffic signals, markings and street name signs; to review design of traffic facilities and to participate in studies involving the economics of street design and operation; to conduct engineering analyses of traffic accidents and to devise remedial measure; to conduct engineering and traffic investigations of traffic conditions; to engage in traffic research, including collection and compilation of traffic data; to cooperate with the Police Department in the establishment of traffic regulatory measures; to cooperate with the City Planning Director in planning master plan of freeways and highways; to cooperate in the promotion of traffic safety educational

***State law reference**—Provisions authorizing local authorities to regulate traffic through traffic-control devices, Veh. C. § 21100.

programs; and to carry out the additional powers and duties imposed by ordinances of the City. (ORD-09-0021, § 3, 2009; Prior code § 3410.3)

10.04.030 Police and Fire Department authority.

A. It shall be the duty of the officers of the Police Department, and such officers as are assigned by the Chief of Police, to enforce all street traffic laws of this City, and all of the State vehicle laws applicable to street traffic in this City.

B. Officers of the Police Department or such officers as are assigned to direct all traffic by voice, hand or other signal, in conformance with traffic laws, provided that in the event of a fire or other emergency, or to expedite traffic, or to safeguard pedestrians, officers of the Police Department may direct traffic as conditions may require, notwithstanding the provisions of the traffic laws.

C. Officers of the Fire Department, in the course of their duties at the scene of a fire, may direct or assist the Police in directing traffic. (Prior code § 3410.4)

10.04.040 Public Service Department authority.

It shall be the duty of the employees of the Public Service Department and such employees as are assigned by the Director of Public Service. in cooperation with the Police Department. to issue notices in accordance with the requirements of the State Vehicle Code for violations of Subsection 10.22.140.A. (Prior code § 3410.4.1)

10.04.050 Parking control checker authority.

A. Employees of the City employed in the classification of parking control checker, or such other classifications as approved by the appointing authority, are authorized and shall, in accordance with the applicable provisions of the Vehicle Code, have the duty to issue notices of violation of any statute of the State or any ordinance of the City or appropriate regulations issued thereunder relating to the standing or parking of a vehicle.

B. Parking control checkers are designated and authorized to remove or cause the removal of a vehicle from a highway or other public property in accordance with the provisions of Sections 22651 and 22669 of the Vehicle Code, when said employees have been duly designated, authorized and assigned to perform such duties by the Chief of Police.

C. Parking control checkers are authorized to regulate and direct traffic in accordance with the provisions of Section 21100 of the Vehicle Code, when said employees have been duly assigned or appointed to perform such duties.

D. Nothing in this Section is intended to operate either in addition to or in contravention of Title 3, Chapter 4.5, of the Penal Code which expressly designates those persons who are classified as peace officers. Further, nothing in this Section is intended to or shall operate to change or shall have the effect of changing the status of the officers and employees authorized to act pursuant to this Section from public or miscellaneous officers and employees to individual peace officers or safety members or classes of peace officers or safety members for purposes of retirement, workers' compensation or similar injury or death benefits to which said officer or employee would not have been entitled as a public or miscellaneous officer or employee prior to the adoption of this Section. (Ord. C-7930 § 1, 2004; Ord. C-6125 § 1, 1985; Ord. C-5302 § 1, 1977; prior code § 3410.4.2.)

10.04.060 Planning and Building Department authority.

It shall be the duty of those employees of the Department of Planning and Building designated by the Director of the Department of Planning and Building, in cooperation with the Police Department, to issue notices in accordance with the requirements of the State Vehicle Code for violations of Sections 10.22.020, 10.22.080, 10.22.130, 10.22.150, 10.22.160, 10.26.030 and 10.40.010.

Those employees designated by the Director of the Department of Planning and Building are authorized and may issue notices of violations pursuant to the applicable provisions of Section 41103 and other sections of the Vehicle Code relating to the standing or parking of a vehicle. If the notice of violation cannot be attached to the vehicle or other personal property, it may be posted on the front door of the involved premises.

Nothing in this Section is intended to operate to make these employees peace officers. Further, nothing in this Section is intended to or shall operate to change or shall have the effect of changing the status of the employees authorized to act pursuant to this Section from public or miscellaneous employees to individual peace officers or safety members or classes of peace officers or

safety members. (Ord. C-6288 § 3, 1986; Ord. C-6158 § 1, 1985; Ord. C-6099 § 5, 1984)

CHAPTER 10.06 VIOLATION NOTICES*

10.06.010 Authorized—Contents.

A. Whenever a person is arrested for any violation of this Title and the person is not retained in custody, the arresting officer may prepare, in duplicate or triplicate, a written notice to appear in court containing the name and address of the person, the license number of his vehicle, if any, the offense charged, and the time and place when and where the person shall appear in court.

B. The time specified in the notice to appear must be at least five (5) days after the arrest.

C. The place specified in the notice to appear shall be either:

1. Before a Municipal Court of the Long Beach Judicial District; or

2. Before an officer authorized by the City to receive a deposit of bail. (Prior code § 3450)

10.06.020 Signing notice required.

The arrested person, in order to secure his release from custody, must give his written promise to appear in court by signing the notice, and the officer shall deliver one (1) copy of the notice to appear to the arrested person. The signed original and triplicate copy of the notice shall be retained by the officer, who shall thereupon release the person arrested from custody. (Prior code § 3450.1)

10.06.030 Compliance by counsel.

A written promise to appear in court may be complied with by appearance by counsel. (Prior code § 3450.2)

10.06.040 Failure to appear deemed separate offense.

Any person wilfully violating his written promise to appear in court shall be guilty of a misdemeanor, regardless of the disposition of the charge upon which he was originally arrested. (Prior code § 3450.3)

*State law reference—Provisions on arrest for traffic violations, Veh. C. § 40500 et seq.

CHAPTER 10.08 TRAFFIC-CONTROL DEVICES†

10.08.010 Installation authority.

A. The City Traffic Engineer shall place and maintain official traffic-control devices as required by ordinance of the Council, and in accordance with Section 10.08.040.

B. Whenever the Vehicle Code requires, for the effectiveness of any provision thereof, the traffic-control devices be installed to give notice to the public of the application of such law, the City Traffic Engineer is authorized to install, or cause to be installed, the necessary devices, subject to any limitations or restrictions set forth in the law applicable thereto.

C. The City Traffic Engineer may also place and maintain, or cause to be placed and maintained, such additional traffic-control devices as he may deem necessary to regulate traffic or to guide or warn traffic, but he shall make such determination of necessity only upon the basis of Traffic Engineering principles and traffic investigations, and in accordance with such standards, limitations and rules as may be set forth in the traffic provisions of this Chapter or applicable laws of the State.
(ORD-09-0021, § 4, 2009; Prior code § 3410.12)

10.08.020 Required for enforcement.

No provision of the Vehicle Code, or of this Title, for which signs are required, shall be enforced against an alleged violator unless appropriate signs are in place and sufficiently legible to be seen by an ordinarily observant person, giving notice of such provisions of the traffic laws. (Prior code § 3410.13)

10.08.030 Obedience required.

Pedestrians and drivers of any vehicles shall obey the instructions of any official traffic-control

†State law reference—Provisions authorizing local authorities to regulate traffic through traffic-control devices, Veh. C. § 21100.

device applicable thereto, placed in accordance with the traffic ordinances of this City, unless otherwise directed by a Police Officer. (Prior code § 3410.14)

10.08.040 Installation.

A. The City Traffic Engineer is authorized to install, operate and maintain official traffic signals at those intersections and other places where traffic conditions are such as to require that the flow of traffic be alternately interrupted and released in order to prevent or relieve traffic congestion, or to protect life or property from exceptional hazard.

B. The City Traffic Engineer shall ascertain and determine the locations where such traffic signals are required, by resort to field observations, traffic counts and other pertinent traffic information.

C. Whenever the City Traffic Engineer installs and maintains an official traffic signal at any intersection, he shall likewise erect and maintain at such intersection-street name signs visible to the principal flow of traffic, unless such street name signs have previously been placed and are maintained at any intersection.
(ORD-09-0021, § 5, 2009; Ord. C-7750 § 1, 2001; prior code § 3410.15)

10.08.050 Lane markings.

The City Traffic Engineer is authorized to place and maintain centerlines and lane lines upon the surface of the roadway to indicate the course to be traveled by vehicles, and may place signs temporarily designating lanes to be used by traffic moving in a particular direction, regardless of the centerline of the highway.
(ORD-09-0021, § 6, 2009; Prior code § 3410.16)

10.08.060 Roadway markings.

The City Traffic Engineer is authorized to place and maintain distinctive roadway markings, as described in the Vehicle Code, on those streets, or parts of streets, where the volume of traffic or the vertical or other curvature of the roadway renders it hazardous to drive on the left side of such marking, or signs and markings. Such marking, or signs and markings, shall have the same effect as similar markings placed by the California Department of Transportation, pursuant to provisions of the Vehicle Code.
(ORD-09-0021, § 7, 2009; Prior code § 3410.17)

10.08.070 Removal or discontinuation permitted.

The City Traffic Engineer is authorized to remove, relocate or discontinue the operation of any traffic-control device not specifically required by State law, or this Code, whenever he determines in any particular case that the conditions which warranted or required the installation no longer exist or pertain.
(ORD-09-0021, § 8, 2009; Prior code § 3410.18)

10.08.080 Hours and days of operation.

The City Traffic Engineer shall determine the hours and days during which any traffic-control device shall be in operation or effect, except in those cases where such hours or days are specified in this Title.
(ORD-09-0021, § 9, 2009; Prior code § 3410.19)

10.08.090 Temporary signs and barriers.

A. The Chief of Police and the City Traffic Engineer are authorized to erect and maintain, or cause to be erected and maintained, temporary traffic-control devices or barriers on any City street or alley and on City-owned property for the purpose of guiding, warning or controlling vehicular and pedestrian traffic during such times that they find it necessary for the safe and efficient movement of pedestrians and vehicles. The authority to install temporary control devices under such circumstances shall be limited to the following conditions:

1. Construction, repair and maintenance work by the City, contractors and utility organizations;

2. Movement of equipment, articles or structures of unusual size;

3. Street and alley obstructions;

4. Parades, processions and public gatherings;

5. Emergencies;

6. Temporary detours;

7. Local special events, filming activities and other such purposes for which the appropriate permits and licenses have been issued.

B. Said temporary traffic-control devices and barriers shall remain in place only as long as the need exists. In the case of temporary curb parking prohibitions, any vehicle parked in violation of such prohibitions may be removed, as provided in the Vehicle Code, by the Police Department, if temporary parking prohibition signs have been erected or placed at least twenty-four (24) hours prior to the removal.

C. No closure of any street, alley or City-owned property under this Section shall be effective until appropriate signs giving adequate notice of said closure are posted at all entrances to the street, alley or City-owned property. Such signs shall be maintained at all such entrances during the entire period that the closure is in effect.
(ORD-09-0021, § 10, 2009; Ord. C-5689 § 3, 1981; prior code § 3410.20)

10.08.100 Department signs and barriers.

No public utility or department in this City shall erect or place any barrier or sign on any street unless of a type first approved by the Manager. No person, whether driver or pedestrian, shall disobey the instructions of any barrier or sign approved, as above provided, erected or placed by a public utility or by any department in this City. (Prior code § 3410.21)

10.08.110 Traffic control on City-owned property.

A. The City Traffic Engineer is authorized to erect and maintain traffic-control devices or barriers on City-owned property for the purpose of guiding, warning or controlling vehicular and pedestrian traffic. The City Traffic Engineer shall maintain a current map and file giving the location, type of traffic control, date of installation, date of removal and other pertinent data which shall be available as a source of information.

B. No person shall drive or park a vehicle or walk on such City-owned property except in conformity with such traffic-control devices and barriers.

C. No person shall stop or park any vehicle within any portion of the public thoroughfare between Lakewood Boulevard, La Plaza and lots 18 and 27 of tract no. 12887, as per map recorded in book 246, pages 18 and 19 of maps, in the Office of the County Recorder of the County of Los Angeles, except those portions thereof designated by official markings or lines as parking places.

D. No driver of any vehicle, or rider of any animal, shall drive or ride said vehicle or animal upon any beach or other area devoted to recreational use, except on the driveways or paths provided therefor, nor hitch or fasten any animal, nor park any vehicle, upon any such place other than in a place provided and established therefor.

E. No person shall drive any dray, truck, wagon, cart or other traffic vehicle carrying or regularly used or employed in carrying goods, wares, merchandise, lumber, machinery, oil, manure, dirt, sand, soil, or any article of trade or commerce, or any offensive article or material whatsoever over the parks or roads or driveways therein, except when delivering any material to, or within, or removing such material from, any public park within the City, by authority or under the direction of the Director of Public Service, Director of Parks, or Director of Recreation.
(ORD-09-0021, § 11, 2009; Prior code § 3410.73)

10.08.120 Automatic traffic-control intersections.

The City Traffic Engineer shall maintain a record of all intersections at which stop controls are installed pursuant to this Chapter. Such record shall be available for public inspection at City hall during regular business hours.
(ORD-09-0021, § 12, 2009; Ord. C-7750 § 2, 2001; Ord. C-7669 § 1, 2000; Ord. C-7640 § 1, 1999; Ord. C-7569 § 2, 1998; Ord. C-7529 § 2, 1998; Ord. C-7451 § 1, 1997; Ord. C-7447 § 1, 1997; Ord. C-7414 § 1, 1996; Ord. C-7362 § 1, 1995; Ord. C-7197 § 3, 1994; Ord. C-7088 § 1, 1993: Ord. C-7068 § 5, 1993; Ord. C-6899 § 1, 1991; Ord. C-6888 § 3, 1991; Ord. C-6756 § 1, 1990; Ord. C-6695 § 1, 1990; Ord. C-6677 § 1, 1989; Ord. C-6644 § 2, 1989; Ord. C-6564 § 1, 1989; Ord.

C-6318 § 1, 1986; Ord. C-6304 § 2, 1986: Ord. C-6213 § 1, 1985; Ord. C-6198 § 1, 1985; Ord. C-6067 § 1, 1984; Ord. C-5933 § 1, 1983; Ord. C-5874 § 7, 1982; Ord. C-5844 §§ 1, 2, 1982; Ord. C-5790 § 5, 1981; Ord. C-5739 § 3, 1981; Ord. C-5711 § 3, 1981; Ord. C-5570 § 7, 1980; Ord. C-5540 §§ 2, 3, 1979; Ord. C-5517 § 4, 1979; Ord. C-5442 § 5, 1978: Ord. C-5248 § 1 (part), 1976; Ord. C-5241 § 1 (part), 1976; Ord. C-5235 § 1 (part), 1976; Ord. C-5233 § 1 (part), 1976; prior code § 3410.138)

10.08.130 Continuation of existing traffic regulations.

Except as otherwise provided in this Chapter, and except as amended or altered from time to time under the authority of this Chapter, all traffic signs, signals, markings and controls heretofore placed in the City shall remain in full force and effect. The elimination from this Code of previously enumerated locations for signs, signals, marking or controls does not constitute the repeal of such regulations. No person shall drive or park any vehicle or device, nor walk in violation of such signs, signals, markings and controls. (Ord. C-7750 § 3, 2001; prior code § 3410.139)

CHAPTER 10.10 TURNING MOVEMENTS*

10.10.010 Placement of markers.

A. The City Traffic Engineer is authorized to place markers, buttons or signs within or adjacent to intersections indicating the course to be traveled by vehicles turning at such intersections, and the City Traffic Engineer is authorized to allocate and indicate more than one (1) lane of traffic from which drivers of vehicles may make right or left turns.

B. When authorized markers, buttons or other indicators are placed within an intersection indicating the course to be traveled by vehicles turning there, no driver of a vehicle shall disobey the directions of such indicators. (ORD-09-0021, § 13, 2009; Prior code § 3410.25)

10.10.020 Restricted turn signs—Authorized.

The City Traffic Engineer is authorized to determine those intersections at which drivers of vehicles shall not make a right, left or U-turn, and shall place proper signs at such intersections. The making of such turns may be prohibited between certain hours of any day and permitted at other hours, in which event the same shall be plainly indicated on the signs, or they may be removed when such turns are permitted. (ORD-09-0021, § 14, 2009; Prior code § 3410.26)

10.10.030 Restricted turn signs—Obedience.

Whenever authorized signs are erected indicating that no right, left or U-turn is permitted, no driver of a vehicle shall disobey the directions of any such sign. (Prior code § 3410.27)

10.10.040 Right turn against stop signal prohibition authorized.

No driver of any vehicle shall make a right turn against a red or stop signal at any intersection where a sign prohibiting such turn has been erected by the City Traffic Engineer, whether or not such vehicle has first stopped at the entrance to the crosswalk on the near side of such intersection or, if there is no crosswalk, at the entrance to any such intersection. The City Traffic Engineer is authorized and directed to erect an appropriate sign at any intersection controlled by an automatic signaling device where an engineering study indicates such right turn against a red or stop signal to be undesirable from a traffic congestion or hazard standpoint. (ORD-09-0021, § 15, 2009; Prior code § 3410.28)

10.10.050 Left turn against stop signal prohibition authorized.

No driver of any vehicle operating on a one-way street shall make a left turn against a stop signal onto a one-way street on which traffic moves to the driver's left, where a sign prohibiting such turn has been erected by the City Traffic Engineer.

*State law reference—Provisions on turning movements, Veh. C. § 22100 et seq.

The City Traffic Engineer is authorized and directed to erect an appropriate sign at any intersection controlled by an automatic signaling device where an engineering study indicates a left turn to be undesirable from a traffic congestion or hazard standpoint. (ORD-09-0021, § 16, 2009; Prior code § 3410.30)

CHAPTER 10.12 SPEED LIMITS

10.12.010 Speed limits increased.

A. Upon the basis of an engineering and traffic survey of the streets concerned, the Council determines and declares that for the following streets and portions of streets, located within "residence" and/or "business districts" as defined by the Vehicle Code, the prima facie speed limit of twenty-five (25) miles per hour is lower than is reasonable; and that in order to facilitate the orderly movement of traffic in a manner which is reasonable and safe, the prima facie limit of speed on said streets shall be as follows:

1. Alamitos Avenue:

a. Pacific Coast Highway to Seventh Street, thirty (30) miles per hour,

2. Anaheim Street:

a. The west City limits to Oregon Avenue, thirty-five (35) miles per hour,

b. Oregon Avenue to Atlantic Avenue, thirty (30) miles per hour,

c. Atlantic Avenue to Cherry Avenue, thirty (30) miles per hour,

d. Cherry Avenue to Ximeno Avenue, thirty (30) miles per hour,

e. Ximeno Avenue to Pacific Coast Highway, thirty-five (35) miles per hour;

3. Artesia Boulevard:

a. The west City limits to Butler Avenue, forty (40) miles per hour,

b. Atlantic Avenue to Orange Avenue, thirty-five (35) miles per hour,

c. Orange Avenue to Cherry Avenue, thirty-five (35) miles per hour,

d. Cherry Avenue to the east City limits, thirty-five (35) miles per hour;

4. Atlantic Avenue:

a. The north City limits to Artesia Boulevard, thirty-five (35) miles per hour,

b. Artesia Boulevard to Coolidge Street, thirty (30) miles per hour,

c. Harding Street to South Street, thirty (30) miles per hour,

d. South Street to Fifty-Second Street, thirty (30) miles per hour,

e. Bixby Road to Wardlow Road, thirty (30) miles per hour,

f. Wardlow Road to Willow Street, thirty-five (35) miles per hour,

g. Willow Street to Pacific Coast Highway, thirty (30) miles per hour,

h. Pacific Coast Highway to Anaheim Street, thirty (30) miles per hour;

5. Bellflower Boulevard:

a. Arbor Road to Carson Street, forty (40) miles per hour,

b. Pageantry Street (south intersection) to Spring Street, forty (40) miles per hour,

c. Spring Street to Willow Street, thirty-five (35) miles per hour,

d. Willow Street to Stearns Street, thirty-five (35) miles per hour,

e. Stearns Street to Atherton Street, forty (40) miles per hour,

f. Atherton Street to Pacific Coast Highway, forty (40) miles per hour;

6. Carson Street:

a. Atlantic Avenue to Orange Avenue, thirty-five (35) miles per hour,

b. Orange Avenue to the east City limit east of Cherry Avenue, forty (40) miles per hour;

7. Clark Avenue:

a. Carson Street to Conant Street, forty (40) miles per hour,

b. Los Coyotes Diagonal to Pacific Coast Highway, thirty-five (35) miles per hour;

8. Long Beach Boulevard:

a. Greenleaf Boulevard to Victoria Street, thirty (30) miles per hour,

b. Victoria Street to East Arbor Street, thirty (30) miles per hour,

c. East Arbor Street to San Antonio Drive, thirty-five (35) miles per hour,

d. San Antonio Drive to Bixby Road, thirty (30) miles per hour,

e. Bixby Road to Wardlow Road, thirty (30) miles per hour,

f. Wardlow Road to Willow Street, thirty-five (35) miles per hour,

g. Willow Street to Pacific Coast Highway, thirty (30) miles per hour,

h. Pacific Coast Highway to Tenth Street, thirty (30) miles per hour;

9. Ninth Street:

a. Santa Fe Avenue to the Long Beach Freeway ramps east of Caspian Avenue, thirty-five (35) miles per hour;

10. Ocean Boulevard:

a. Alamitos Avenue to Lindero Avenue, thirty (30) miles per hour,

b. Lindero Avenue to Livingston Drive, thirty (30) miles per hour,

c. Livingston Drive to Bennett Avenue, thirty (30) miles per hour,

d. Golden Avenue to Alamitos Avenue, thirty (30) miles per hour;

11. Pacific Avenue:

a. Thirty-Second Street to Spring Street, forty (40) miles per hour,

b. Spring Street to Twenty-Third Street, thirty (30) miles per hour,

c. Pacific Coast Highway to Seventh Street, thirty (30) miles per hour;

12. Pacific Coast Highway:

a. A point five hundred feet (500′) west of Judson Avenue to the east line of the Los Angeles River, forty (40) miles per hour,

b. The east line of the Los Angeles River to Alamitos Avenue, thirty-five (35) miles per hour,

c. All portions of the street within the City between Alamitos Avenue and Ximeno Avenue, thirty-five (35) miles per hour,

d. Ximeno Avenue to a point eight hundred feet (800′) south of Anaheim Street, forty-five (45) miles per hour,

e. Eighth Street to Bellflower Boulevard, forty-five (45) miles per hour;

13. Palo Verde Avenue:

a. The north City limits to Barbanell Street, thirty-five (35) miles per hour,

b. Woodruff Avenue (south intersection) to Atherton Street, thirty-five (35) miles per hour;

14. Pioneer Boulevard:

a. All portions of the street within the City and north of Two Hundred Twenty-Third Street, thirty (30) miles per hour;

15. Redondo Avenue:

a. The City limits near Pacific Coast Highway to Anaheim Street, thirty-five (35) miles per hour,

b. Anaheim Street to Broadway, thirty (30) miles per hour,

c. Redondo Avenue to Livingston Drive, thirty (30) miles per hour;

16. Reservoir Drive West:

a. Redondo Avenue to Pacific Coast Highway, thirty (30) miles per hour;

17. San Antonio Drive:

a. Long Beach Boulevard to Orange Avenue, thirty-five (35) miles per hour,

b. Orange Avenue to Cherry Avenue, thirty-five (35) miles per hour;

18. Santa Fe Avenue:

a. The north City limits to Willow Street, thirty-five (35) miles per hour,

b. Willow Street to Pacific Coast Highway, thirty-five (35) miles per hour,

c. Pacific Coast Highway to Ninth Street, thirty-five (35) miles per hour;

19. Seventh Street:

a. Alamitos Avenue to Junipero Avenue, thirty (30) miles per hour,

b. Junipero Avenue to Park Avenue, thirty (30) miles per hour,

c. Atlantic Avenue to Alamitos Avenue, thirty (30) miles per hour;

20. South Street:

a. Orange Avenue to Cherry Avenue, thirty-five (35) miles per hour,

b. All portions of the street within the City between Cherry Avenue and Hayter Avenue, thirty-five (35) miles per hour;

21. Spring Street:

a. Long Beach Boulevard to the City limits near Atlantic Avenue, thirty-five (35) miles per hour;

22. Stearns Street:

a. Clark Avenue to Marwick Avenue, thirty (30) miles per hour,

b. Palo Verde Avenue to Studebaker Road, thirty (30) miles per hour;

23. Wardlow Road:

a. The west City limits to Delta Avenue, thirty-five (35) miles per hour,

b. Long Beach Boulevard to Orange Avenue, thirty-five (35) miles per hour,

c. Orange Avenue to Cherry Avenue, thirty-five (35) miles per hour,

d. Clark Avenue to Palo Verde Avenue, thirty-five (35) miles per hour,

e. Palo Verde Avenue to the west line of the San Gabriel River, thirty-five (35) miles per hour;

24. Willow Street:

a. Webster Avenue to Santa Fe Avenue, thirty-five (35) miles per hour,

b. Santa Fe Avenue to the City limits near Atlantic Avenue, thirty (30) miles per hour. (ORD-26-0015 § 1, 2026; ORD-23-0020 § 1, 2023; ORD-21-0033 §§ 1—9, 2021; ORD-15-0039 § 1, 2015; ORD-15-0001 § 1, 2015; ORD-14-0017 § 1, 2014; ORD-13-0019 §§ 1, 2, 2013; ORD-08-0002 §§ 1—7, 2008; ORD-05-0028 § 3, 2005; Ord. C-7953 §§ 1, 2, 3, 4, 5, 6, 11, 2004; Ord. C-7856 §§ 1—3, 2003; Ord. C-7766 § 1, 2001; Ord. C-7654 § 1, 1999; Ord. C-7595 §§ 1, 4, 1999; Ord. C-7526 §§ 1—9, 1998; Ord. C-7465 § 1, 1997; Ord. C-7334 §§ 1—3, 1995; Ord. C-7230 §§ 1—8, 1994; Ord. C-6982 § 1, 1992; Ord. C-6821 §§ 1—6, 1990; Ord. C-6660 §§ 1, 2, 4, 1989; Ord. C-6523 § 2, 1988; Ord. C-6168 §§ 1—5, 1985; Ord. C-6090 §§ 1—4, 1984; Ord. C-5985 § 2, 1983; Ord. C-5874 §§ 1—3, 1982; Ord. C-5759 §§ 1—3, 6, 1981; Ord. C-5593 § 4, 1980; Ord. C-5448 § 1, 1978; Ord. C-5425 § 6, 1978; Ord. C-5394 § 3, 1978; Ord. C-5390 § 1, 1978; Ord. C-5365 § 2 (part), 1977; Ord. C-5352 § 2 (part), 1977; Ord. C-5303 § 2, 1977; Ord. C-5278 § 2 (part), 1977; Ord. C-5268 § 1 (part), 1976; prior code § 3410.120)

10.12.020 Speed limits decreased.

A. Upon the basis of an engineering and traffic survey of the streets concerned, the Council determines and declares that for the following streets and portions of streets, the maximum speed limit of sixty-five (65) miles per hour is more than is reasonable and safe; and that in order to facilitate the orderly movement of traffic in a manner which is reasonable and safe the prima facie limit of speed on said portions of said streets shall be as follows:

1. All roadways and portions of roadways within the City, except freeways and those other roadways for which prima facie speed limits are designated under the Vehicle Code, or the traffic regulations of this Code, twenty-five (25) miles per hour;

2. Roadways on City property:

a. All roadways in City-owned parks, recreational areas, parking lots, and all other City facilities, unless specified otherwise, twenty (20) miles per hour,

b. All roadways less than twenty-five feet (25') in width within the boundaries of El Dorado Park, fifteen (15) miles per hour,

c. Beach bicycle path from Alamitos Avenue to 54th Place, twenty (20) miles per hour;

3. Appian Way:

a. The Toledo to the southerly end of the street, twenty-five (25) miles per hour;

4. Arbor Road:

a. Lakewood Boulevard to Bellflower Boulevard, twenty (20) miles per hour;

5. Artesia Boulevard:

a. Butler Avenue to Atlantic Avenue, forty (40) miles per hour;

6. Atherton Street:

a. Ximeno Avenue to Bellflower Boulevard, thirty-five (35) miles per hour,

b. Bellflower Boulevard to Palo Verde Avenue, thirty-five (35) miles per hour,

c. Palo Verde Avenue to Studebaker Road, thirty-five (35) miles per hour;

7. Atlantic Avenue:

a. Coolidge Street to Harding Street, thirty (30) miles per hour,

b. Fifty-Second Street to Forty-Fifth Street, thirty-five (35) miles per hour,

c. Forty-Fifth Street to San Antonio Drive, thirty (30) miles per hour;

8. Bellflower Boulevard:

a. The north City limits to Arbor Road, forty (40) miles per hour,

b. Carson Street to Pageantry Street (south intersection), forty (40) miles per hour,

c. Atherton Street to Pacific Coast Highway, forty (40) miles per hour;

9. Bloomfield Avenue:

a. All portions of the street within the City, forty (40) miles per hour;

10. Boathouse Lane:

a. Eliot Street to Pete Archer Rowing Center, fifteen (15) miles per hour;

11. Broadway:

a. Shoreline Drive to Alamitos Avenue, twenty (20) miles per hour,

b. Alamitos Avenue to Junipero Avenue, twenty-five (25) miles per hour,

c. Junipero Avenue to Redondo Avenue, twenty-five (25) miles per hour,

d. Redondo Avenue to Nieto Avenue/ Livingston Drive, twenty-five (25) miles per hour;

12. Burnett Street:

a. San Francisco Avenue to Olive Avenue, twenty (20) miles per hour;

13. California Avenue:

a. San Antonio Drive to the City limits near Wardlow Road, twenty (20) miles per hour;

14. Carson Street:

a. The City limits west of Lakewood Drive to Clark Avenue, thirty-five (35) miles per hour,

b. Clark Avenue to Woodruff Avenue, forty (40) miles per hour,

c. Woodruff Avenue to the City limits near the San Gabriel River, forty (40) miles per hour;

15. Cedar Avenue:

a. Pacific Coast Highway to Seventh Street, twenty (20) miles per hour;

16. Cherry Avenue:

a. Those portions of the street within the City, between the City limits near Seventieth Street and the Union Pacific Railroad overcrossing near Fifty-Third Street, thirty-five (35) miles per hour,

b. Those portions of the street within the City, between Union Pacific Railroad overcrossing near Fifty-Third Street and San Antonio Drive, forty (40) miles per hour,

c. San Antonio Drive to Carson Street, forty (40) miles per hour,

d. Carson Street to Wardlow Road, thirty-five (35) miles per hour,

e. Wardlow Road to the City limits near Spring Street, thirty-five (35) miles per hour;

17. Chestnut Avenue:

a. Fourteenth Street to Pacific Coast Highway, twenty (20) miles per hour

18. Clark Avenue:

a. Conant Street to Spring Street, forty (40) miles per hour,

b. Spring Street to Los Coyotes Diagonal, forty (40) miles per hour;

19. Clark Avenue Frontage Road:

a. Wardlow Road to Monlaco Road, twenty (20) miles per hour;

20. Conant Street:

a. Lakewood Boulevard to Clark Avenue, twenty-five (25) miles per hour;

21. Del Amo Boulevard:

a. The west City limits to Atlantic Avenue, forty (40) miles per hour,

b. Atlantic Avenue to the east City limits, forty (40) miles per hour;

22. Downey Avenue:

a. All portions of the street within the City, thirty-five (35) miles per hour;

23. Easy Avenue:

a. Twentieth Street to Thirty-Fourth Street, twenty (20) miles per hour;

24. El Embarcadero:

a. A point three hundred feet (300') west of Pier D Avenue to Pico Avenue, thirty (30) miles per hour;

25. Eliot Street:

a. Colorado Street to Spinnaker Bay Drive, twenty-five (25) miles per hour,

b. Spinnaker Bay Drive to Bellflower Boulevard, twenty-five (25) miles per hour;

26. First Street:

a. Elm Avenue to Alamitos Avenue, twenty (20) miles per hour,

b. Alamitos Avenue to Cherry Avenue, twenty (20) miles per hour,

c. Cherry Avenue to Redondo Avenue, twenty (20) miles per hour;

27. Fifteenth Street:

a. Orange Avenue to Cherry Avenue, twenty (20) miles per hour;

28. Fourth Street:

a. Temple Avenue to Park Avenue, twenty-five (25) miles per hour,

b. Alamitos Avenue to Rose Place, twenty-five (25) miles per hour,

c. Rose Place to Junipero Avenue, twenty (20) miles per hour,

d. Junipero Avenue to Temple Avenue, twenty-five (25) miles per hour;

29. Golden Avenue:

a. Baker Street to Wardlow Road, twenty-five (25) miles per hour;

30. Granada Avenue:

a. The Toledo to Ocean Boulevard, twenty (20) miles per hour;

31. Harbor Plaza:

a. The south end of the Queen's Way Bridge ramps to Panorama Drive, thirty-five (35) miles per hour;

32. Harbor Scenic Drive:

a. Its junction with the Long Beach Freeway to the Ocean Boulevard overcrossing, fifty (50) miles per hour,

b. The Ocean Boulevard overcrossing to the Panorama Drive intersection (northbound roadway) or undercrossing (southbound roadway), fifty (50) miles per hour,

c. Panorama Drive to Harbor Scenic Way, thirty-five (35) miles per hour;

33. Harcourt Street:

a. Susanna Road to Long Beach Boulevard, twenty (20) miles per hour;

34. Harvey Way:

a. Lakewood Boulevard to Bellflower Boulevard, twenty (20) miles per hour;

35. Hathaway Avenue:

a. Redondo Avenue to Termino Avenue, twenty-five (25) miles per hour;

36. Henry Ford Avenue:

a. The north City limits to Ocean Boulevard, excluding the Bascule Bridge, thirty-five (35) miles per hour,

b. The Bascule Bridge itself, twenty-five (25) miles per hour;

37. Hill Street:

a. San Francisco Avenue to Orange Avenue, twenty (20) miles per hour;

38. Kilroy Airport Way:

a. Redondo Avenue to one thousand eight hundred feet (1,800') east of Redondo Avenue, thirty-five (35) miles per hour,

b. One thousand eight hundred feet (1,800') east of Redondo Avenue to Spring Street, twenty-five (25) miles per hour;

39. Lakewood Boulevard:

a. The north City limits to Carson Street, forty (40) miles per hour,

b. Carson Street to Conant Street, forty-five (45) miles per hour,

c. Conant Street to Willow Street, forty-five (45) miles per hour,

d. Willow Street to the Outer Traffic Circle, forty (40) miles per hour;

40. Lime Avenue:

a. Pacific Coast Highway to Burnett Street, twenty (20) miles per hour;

41. Linden Avenue:

a. Fifty-Second Street to Harding Street, twenty (20) miles per hour;

42. Livingston Drive:

a. Second Street to Broadway/Nieto Avenue, twenty (20) miles per hour;

43. Locust Avenue:

a. Del Amo Boulevard to Sixtieth Street, fifteen (15) miles per hour;

44. Long Beach Freeway:

a. Downtown Long Beach/Port of Long Beach Junction to the Ocean Boulevard overcrossing, fifty (50) miles per hour;

45. Los Arcos Street:

a. Marwick Avenue to Woodruff Avenue (South), twenty (20) miles per hour;

46. Los Coyotes Diagonal:

a. The north City limits to Wardlow Road, forty (40) miles per hour,

b. Wardlow Road to Willow Street, forty (40) miles per hour,

c. Willow Street to the Los Alamitos Traffic Circle, forty (40) miles per hour;

47. Loynes Drive:

a. Bellflower Boulevard to Pacific Coast Highway, twenty-five (25) miles per hour;

48. Marina Drive:

a. Second Street to Studebaker Road, twenty-five (25) miles per hour;

49. Mira Mar Avenue:

a. Third Street to Livingston Drive, twenty (20) miles per hour;

50. Ninth Street:

a. The westerly end of the street to Santa Fe Avenue, thirty (30) miles per hour;

51. Norse Way:

a. Carson Street to Lakewood Boulevard, twenty (20) miles per hour;

52. Norwalk Boulevard:

a. All portions of the street within the City, forty (40) miles per hour;

53. Obispo Avenue:

a. Seventieth Street to Harding Street, twenty (20) miles per hour,

b. Pacific Coast Highway to Tenth Street, twenty (20) miles per hour,

c. Tenth Street to Broadway, twenty (20) miles per hour;

54. Ocean Boulevard:

a. The west City limits to the Terminal Island Freeway, fifty (50) miles per hour,

b. The Terminal Island Freeway to the center of the International Gateway Bridge, fifty-five (55) miles per hour,

c. The center of the International Gateway Bridge to Golden Avenue, fifty-five (55) miles per hour;

55. Pacific Coast Highway:

a. The west City limits to a point five hundred feet (500′) west of Judson Avenue, forty-five (45) miles per hour,

b. A point eight hundred feet (800') south of Anaheim Street to Eighth Street, forty-five (45) miles per hour,

c. Bellflower Boulevard to Second Street, fifty (50) miles per hour,

d. Second Street to the east City limits, fifty (50) miles per hour;

56. Pacific Place:

a. The on ramp to northbound San Diego Freeway to Thirty-Second Street, forty (40) miles per hour;

57. Palo Verde Avenue:

a. Barbanell Street to Woodruff Avenue, (south intersection), thirty-five (35) miles per hour,

b. Atherton Street to Anaheim Road, thirty-five (35) miles per hour;

58. Panorama Drive:

a. A point two thousand six hundred feet (2,600') west of Pier A Avenue to Windham Avenue, thirty-five (35) miles per hour,

b. Windham Avenue to Harbor Scenic Drive, thirty-five (35) miles per hour;

59. Paramount Boulevard:

a. The north City limits to Artesia Boulevard, thirty-five (35) miles per hour,

b. Artesia Boulevard to the City limits near Fifty-Fourth Street, forty (40) miles per hour;

60. Park Avenue:

a. Seventh Street to Fourth Street, twenty (20) miles per hour;

61. Pico Avenue:

a. Ninth Street to El Embarcadero, thirty-five (35) miles per hour;

62. Pier A Avenue:

a. Windham Avenue to Panorama Drive, thirty-five (35) miles per hour;

63. Pier J Avenue:

a. Panorama Drive to its intersection with the east-west roadway located one thousand seven hundred feet (1,700') north of Harbor Scenic Way, thirty-five (35) miles per hour;

64. Queen's Highway:

a. All portions of the roadway east of Panorama Drive or the undercrossing thereof, thirty (30) miles per hour;

65. Queen's Way Bridge:

a. Ocean Boulevard to the southerly end of the bridge, forty (40) miles per hour;

66. Redondo Avenue:

a. Spring Street to the City limits near Reservoir Drive West, forty (40) miles per hour;

67. Roosevelt Road:

a. Long Beach Boulevard to Cerritos Avenue, twenty (20) miles per hour;

68. Roswell Avenue:

a. Seventh Street to Third Street, twenty (20) miles per hour,

b. Third Street to Livingston Drive, twenty (20) miles per hour;

69. San Antonio Drive:

a. Goldfield Avenue to Cherry Avenue, forty (40) miles per hour;

70. Seaside Way:

a. Golden Avenue to Pine Avenue, twenty-five (25) miles per hour,

b. Pine Avenue to Linden Avenue, twenty (20) miles per hour;

71. Second Street:

a. Naples Plaza to Marina Drive, thirty-five (35) miles per hour,

b. Marina Drive to Studebaker Road, forty (40) miles per hour,

c. Studebaker Road to the east City limits, fifty (50) miles per hour,

d. Mira Mar Avenue to Livingston Drive, twenty-five (25) miles per hour,

e. Livingston Drive to Bay Shore Avenue, twenty (20) miles per hour,

f. Bay Shore Avenue to Sorrento Drive, twenty-five (25) miles per hour,

g. Sorrento Drive to Naples Plaza, thirty (30) miles per hour;

72. Seventh Street:

a. Park Avenue to Santiago Avenue, forty (40) miles per hour,

b. Pacific Coast Highway to Margo Avenue, forty (40) miles per hour,

c. Margo Avenue to the east City limits, forty-five (45) miles per hour,

d. Santiago Avenue to Pacific Coast Highway, thirty-five (35) miles per hour;

73. Shadypark Drive:

a. Pageantry Street to Metz Street, twenty (20) miles per hour;

74. Shoreline Drive:

a. The Ocean Boulevard overcrossing to Chestnut Place, forty-five (45) miles per hour,

b. Chestnut Place to Shoreline Village Drive, thirty-five (35) miles per hour,

c. Shoreline Village Drive to Alamitos Avenue, forty (40) miles per hour;

75. Sixth Street:

a. Park Avenue to Manila Avenue, twenty-five (25) miles per hour,

b. Orange Avenue to Almond Avenue, fifteen (15) miles per hour;

76. Sixty-Fourth Street:

a. Myrtle Avenue to Cherry Avenue, twenty (20) miles per hour;

77. Sixty-Fifth Street:

a. Orange Avenue to Cherry Avenue, twenty (20) miles per hour;

78. Sixty-Eighth Street:

a. Harbor Avenue to Long Beach Boulevard, twenty (20) miles per hour;

79. Sorrento Drive:

a. Second Street to Appian Way, fifteen (15) miles per hour;

80. Spring Street:

a. Those portions of the street within the City between California Avenue and Junipero Avenue, thirty-five (35) miles per hour,

b. Junipero Avenue to Temple Avenue, forty (40) miles per hour,

c. Temple Avenue to Lakewood Boulevard, forty (40) miles per hour,

d. Lakewood Boulevard to Los Coyotes Diagonal, forty (40) miles per hour,

e. Los Coyotes Diagonal to Studebaker Road, forty (40) miles per hour,

f. Studebaker Road to the east City limits, forty (40) miles per hour;

81. Stearns Street:

a. Marwick Avenue to Palo Verde Avenue, thirty-five (35) miles per hour;

82. Studebaker Road:

a. Los Coyotes Diagonal to Spring Street, forty (40) miles per hour,

b. Spring Street to Atherton Street, forty (40) miles per hour,

c. Atherton Street to a point five hundred feet (500') south of Ninth Street, forty (40) miles per hour,

d. A point five hundred feet (500') south of Ninth Street to Westminster Avenue, forty-five (45) miles per hour;

83. Temple Avenue:

a. Those portions of the street within the City between Spring Street and Hathaway Avenue, forty (40) miles per hour,

b. Pacific Coast Highway to Seventh Street, twenty (20) miles per hour,

c. Seventh Street to Ocean Boulevard, twenty (20) miles per hour;

84. Termino Avenue:

a. Hathaway Avenue to Anaheim Street, twenty (20) miles per hour,

b. Seventh Street to Third Street, twenty (20) miles per hour,

c. Third Street to Livingston Drive, twenty (20) miles per hour;

85. Terminal Island Freeway:

a. The City limits north of the Cerritos Channel to Ocean Boulevard, forty-five (45) miles per hour;

86. The Toledo:

a. Livingston Drive to Second Street, twenty (20) miles per hour,

b. Second Street to Appian Way, fifteen (15) miles per hour;

87. Third Street:

a. Golden Avenue to Alamitos Avenue, twenty (20) miles per hour,

b. Alamitos Avenue to Junipero Avenue, twenty-five (25) miles per hour,

c. Junipero Avenue to Nieto Avenue, twenty (20) miles per hour;

88. Thirty-Sixth Street:

a. Atlantic Avenue to Cherry Avenue, twenty (20) miles per hour;

89. Tulane Avenue:

a. Eagle Street to Los Coyotes Diagonal, fifteen (15) miles per hour;

90. Twentieth Street:

a. San Francisco Avenue to Orange Avenue, twenty (20) miles per hour;

91. Twenty-Third Street:

a. Euclid Avenue to Clark Avenue (West Service Road), twenty (20) miles per hour;

92. Victoria Street:

a. Long Beach Boulevard to Susanna Road, thirty-five (35) miles per hour;

93. Viking Way:

a. Carson Street to Bellflower Boulevard, twenty (20) miles per hour;

94. Walnut Avenue:

a. The City limits near Thirty-Second Street to the City limits near Spring Street, thirty-five (35) miles per hour,

b. The City limits near Twentieth Street to Pacific Coast Highway, twenty-five (25) miles per hour,

c. Pacific Coast Highway to Seventh Street, twenty (20) miles per hour,

d. Seventh Street to Third Street, twenty (20) miles per hour;

95. Wardlow Road:

a. Delta Avenue to Golden Avenue, forty (40) miles per hour,

b. Golden Avenue to Long Beach Boulevard, thirty-five (35) miles per hour,

c. Lakewood Boulevard to Clark Avenue, thirty-five (35) miles per hour,

d. The west line of the San Gabriel River to the east line of the San Gabriel River Freeway, thirty-five (35) miles per hour,

e. The east line of the San Gabriel River Freeway to the east City limits, thirty-five (35) miles per hour,

f. Cherry Avenue to the termination of the street east of Cherry Avenue, thirty (30) miles per hour;

96. Willow Street:

a. The west City limits to Webster Avenue, thirty-five (35) miles per hour,

b. The City limits near Temple Avenue to Lakewood Boulevard, forty (40) miles per hour,

c. Lakewood Boulevard to the prolongation of Albury Avenue, forty (40) miles per hour,

d. The prolongation of Albury Avenue to Monogram Avenue, forty (40) miles per hour,

e. Monogram Avenue to Studebaker Road, forty (40) miles per hour,

f. Studebaker Road to the east City limits, forty (40) miles per hour;

97. Windham Avenue:

a. Pico Avenue to a point one thousand two hundred feet (1,200') north of Van Camp Street, thirty-five (35) miles per hour,

b. A point one thousand two hundred feet (1,200') north of Van Camp Street to Panorama Drive, thirty-five (35) miles per hour;

98. Woodruff Avenue:

a. The north City limits to Los Coyotes Diagonal, forty (40) miles per hour,

b. Los Coyotes Diagonal to Willow Street, forty (40) miles per hour.

B. Upon the basis of an engineering and traffic survey of the streets concerned, the Council determines and declares that for the following streets and portions of streets, located within "residence" and/or "business districts" as defined by the Vehicle Code, the prima facie speed limit of twenty-five (25) miles per hour is more than is reasonable; and that in order to facilitate the orderly movement of traffic in a manner which is reasonable and safe, the prima facie limit of speed on said streets shall be as follows:

1. Alboni Place:

a. Ocean Boulevard to First Street, fifteen (15) miles per hour;

2. Bay Shore Avenue:

a. Ocean Boulevard to Appian Way, twenty (20) miles per hour;

3. Bermuda Street:

a. Cherry Avenue to Junipero Avenue, twenty (20) miles per hour;

4. Cedar Avenue:

a. Hill Street to Willow Street, twenty (20) miles per hour;

5. Dairy Avenue:

a. Market Street to South Street, twenty (20) miles per hour;

6. Fourteenth Street:

a. Ximeno Avenue to Pacific Coast Highway, twenty (20) miles per hour;

7. Hill Street:

a. Santa Fe Avenue to Gale Avenue, twenty (20) miles per hour;

8. Hoffman Avenue:

a. Tenth Street to Anaheim Street, fifteen (15) miles per hour;

9. Josie Avenue:

a. Willow Street to Belen Street, twenty (20) miles per hour;

10. Junipero Avenue:

a. Seventh Street to Pacific Coast Highway, twenty (20) miles per hour,

b. Ocean Boulevard to the Juniper Beach Lot, twenty (20) miles per hour;

11. Karen Avenue:

a. Spring Street to Wardlow Road, twenty (20) miles per hour;

12. Lewis Avenue:

a. 17th Street to Pacific Coast Highway, fifteen (15) miles per hour;

13. Linden Avenue:

a. 20th Street to 25th Way, twenty (20) miles per hour;

14. Marshall Place:

a. Atlantic Avenue to Orange Avenue, twenty (20) miles per hour;

15. Monlaco Road:

a. Woodruff Avenue to Palo Verde Avenue, twenty (20) miles per hour;

16. Orange Avenue:

a. Fourth Street to Fifteenth Street, twenty (20) miles per hour;

17. Parkcrest Street:

a. Osler Avenue to Bellflower Boulevard, twenty (20) miles per hour;

18. Pine Avenue:

a. 14th Street to Hill Street, twenty (20) miles per hour;

19. Sixth Street:

a. Juniper Avenue to Ximeno Avenue, twenty (20) miles per hour,

b. Maine Avenue to Atlantic Avenue, twenty (20) miles per hour,

c. Atlantic Avenue to Alamitos Avenue, twenty (20) miles per hour;

20. Terrylynn Place:

a. Del Mar Avenue to Country Club Drive, twenty (20) miles per hour;

21. Thirty-Second Street:

a. Santa Fe Avenue to Gale Avenue, twenty (20) miles per hour;

22. Twenty-First Street:

a. San Francisco Avenue to Long Beach Boulevard, twenty (20) miles per hour;

23. Walnut Avenue:

a. South Street to Harding Street, twenty (20) miles per hour;

24. Walton Street:

a. Radnor Avenue to Faust Avenue, twenty (20) miles per hour. (ORD-26-0015 § 2, 2026; ORD-25-0006 § 1, 2025; ORD-23-0020 § 2, 2023; ORD-21-0033 §§ 10—17, 2021; ORD-15-0039 § 2, 2015; ORD-13-0019 §§ 3—6, 2013; ORD-05-0028 §§ 1, 2, 4, 2005; Ord. C-7953 §§ 7, 8, 9, 10, 2004; Ord. C-7856 §§ 4, 5, 2003; Ord. C-7654 § 2, 1999; Ord. C-7595 § 2, 1999; Ord. C-7554 § 1, 1998; Ord. C-7526 § 10, 1998; Ord. C-7334 §§ 4, 9, 1995; Ord. C-7230 §§ 9, 10, 1994; Ord. C-7068 §§ 1—3, 6, 1993; Ord. C-6821 §§ 7—11, 1990; Ord. C-6660 §§ 3, 5, 1989; Ord. C-6523 § 1, 1988; Ord. C-6435 §§ 2, 3, 1987; Ord. C-6168 § 6, 1985; Ord. C-5985 §§ 1, 3, 1983; Ord. C-5874 §§ 5, 6, 1982; Ord. C-5719 §§ 4, 5, 1981; Ord. C-5593 §§ 1, 2, 1980; Ord. C-5418 § 3, 1978; Ord. C-5384 § 1, 1978; Ord. C-5352 § 1, 1977; Ord. C-5303 § 1, 1977; Ord. C-5278 §§ 1, 2 (part), 1977; prior code § 3410.121)

10.12.030 Speed limits decreased on narrow streets.

A. Upon the basis of an engineering and traffic survey of the streets concerned, the Council determines and declares that for the following streets and portions of streets the prima facie speed limit of twenty-five (25) miles per hour in a business or residential district or in a public park on a street having a roadway not exceeding twenty-five feet (25') in width is higher than is reasonable or safe and that, in order to facilitate the orderly movement of traffic in a manner which is reasonable and safe, the prima facie speed limit on such streets shall be as follows:

1. Belmont Shore Residence District:

a. All avenues south of Livingston Drive or The Toledo, north of Ocean Boulevard, and west of Bayshore Avenue, except Granada Avenue, fifteen (15) miles per hour;

2. Florida Street:

a. Orange Avenue to Hermosa Avenue, fifteen (15) miles per hour;

3. Paoli Way:

a. East of La Verne Avenue to Bay Shore Avenue, fifteen (15) miles per hour;

4. Zona Court:

a. Fifth Street to Fourth Street, twenty (20) miles per hour. (ORD-23-0020 § 3, 2023; ORD-21-0033 § 18, 2021; Ord. C-7334 § 5, 1995; Ord. C-6981 § 1, 1992)

10.12.040 Speed limits on street segments adjacent to playgrounds.

The City Council determines and declares that a prima facie speed limit of twenty-five (25) miles per hour may be posted on any street, other than a state highway, adjacent to any children's playground in a public park during hours or days when children are expected to use the facilities. The City Traffic Engineer may cause signs to be posted, giving notice of the twenty-five (25) miles per hour speed limit and the hours when the speed limit is in effect. (ORD-26-0015 § 3, 2026)

CHAPTER 10.14 ONE-WAY STREETS AND ALLEYS*

10.14.010 Establishment.

Whenever any provision of this Chapter designates a one-way street or alley, the City Traffic Engineer shall place and maintain signs giving notice thereof, and no such regulations shall be effective unless such signs are in place. Signs indicating the direction of lawful traffic movement shall be placed at every intersection where movement of traffic in the opposite direction is prohibited. The streets, portions of streets and alleys designated in Section 10.14.020 are designated for one-way traffic in the directions respectively set forth therein. (ORD-09-0021 § 17, 2009; Prior code § 3410.37)

10.14.020 Designated.

For the purpose of Section 10.14.010, no person shall drive or operate any vehicle on the following streets, or portions of streets, and alleys, in a direction other than designated for one-way traffic:

A. Streets and portions of streets:

1. (East) First Street, between Mitchell Avenue and Pico Avenue,

2. (West) North service road of Second Street, between the east line of Padua Drive and Sorrento Drive,

3. (West) Third Street, between Topaz Court and Alamitos Avenue,

4. (East) Fifth Street, between Nebraska Avenue and Walnut Avenue,

5. (East) Sixth Street, between San Francisco Avenue and Atlantic Avenue,

6. (East) Seventh Street south, between Pico Avenue and west City limits,

7. (West) Seventh Street, between southbound De Forest Avenue and Atlantic Avenue,

8. (West) South service road of Seventh Street, between Golden Avenue and San Francisco Avenue,

9. (West) Seventh Street north, between Pico Avenue and west City limits,

10. (East) the south roadway of Ninth Street, between a point two hundred feet (200') west of Caspian Avenue and Pico Avenue,

11. (West) Tenth Street, between Ninth Street and Pico Avenue,

12. (East) Fourteenth Street north, between Long Beach Boulevard and Magnolia Avenue,

13. (West) Fourteenth Street south, between Long Beach Boulevard and Magnolia Avenue,

14. (West) Sixteenth Street, between Gundry Avenue and Walnut Avenue,

15. (Westbound) West Fifty-First Street, between a point three hundred feet (300') west of Long Beach Boulevard and Pacific Avenue,

16. (South) Alamitos Avenue, between Ocean Boulevard and Seaside Boulevard,

17. (Southwest) Argonne Avenue, between Ocean Boulevard and Livingston Drive,

18. (Southwest) Bay Shore Avenue, between Ocean Boulevard and Fifty-Fourth Place,

19. (South) Belmont Avenue, between Ocean Boulevard and First Street,

---

***State law reference**—Provisions on the authority of local authorities to regulate highways, Veh. C. § 21101.

20. (North) Bennett Avenue, between Ocean Boulevard and Livingston Drive,

21. (East) Broadway, between Magnolia Avenue and Alamitos Avenue,

22. (East) Campo Walk, from Ravenna Drive to Second Street,

23. (South) Cedar Avenue, south of Ocean Boulevard to the east-west alley north of Windsor Place,

24. (South) Cherry Avenue west service road, between a point four hundred feet (400') north of Wardlow Road and Carson Street,

25. (Northeast) Claremont Avenue, between Ocean Boulevard and Second Street,

26. (South) Claremont Avenue, between The Toledo and Second Street,

27. (North) Clark Avenue east service road, between the east-west alley located three hundred forty-six feet (346') north of Los Coyotes Diagonal and Eagle Street,

28. (Northeast) Corona Avenue, between Ocean Boulevard and The Toledo,

29. (Southwest) Covina Avenue, between Ocean Boulevard and The Toledo,

30. (South) Fashion Avenue, between the north line of Ninth Street and a point three hundred feet (300') north of the north line of Ninth Street,

31. (East) Florida Street, between Orange Avenue and Hermosa Avenue,

32. (Southwest) Glendora Avenue, between Ocean Boulevard and The Toledo,

33. (South) Golden Avenue, between Sixth Street and Seventh Street,

34. (Northeast) La Verne Avenue, between Ocean Boulevard and The Toledo,

35. (South) Lewis Avenue, between Anaheim Street and Eleventh Street,

36. Lido Lane, (southeast) between The Toledo and Appian Way,

37. (Southwest) Loreta Walk, between Naples Plaza and Garibaldi Lane,

38. (Counterclockwise) Los Alamitos Traffic Circle,

39. (South) Monrovia Avenue, between Appian Way and Broadway,

40. (Southwest) Nieto Avenue, between Ocean Boulevard and The Toledo,

41. (East) Ocean Boulevard south, between Termino Avenue and Bay Shore Avenue,

42. (West) Ocean Boulevard north, between Termino Avenue and Bay Shore Avenue,

43. (South) Orange Drive, between the north line of Salt Lake Street and a point approximately one hundred ninety-five feet (195') to the north,

44. Orizaba Avenue counterclockwise around Rose park,

45. (North) Pacific Avenue east, between Broadway and Third Street,

46. (South) Pacific Avenue west, between Broadway and Third Street,

47. (Southwest) Padua Drive, between Appian Way and the north frontage road of Second Street,

48. (Southwest) Park Avenue, between Ocean Boulevard and Second Street,

49. (Northeast) Pomona Avenue, between Ocean Boulevard and The Toledo,

50. (North) Prospect Avenue, between Ocean Boulevard and Livingston Drive,

51. (North) Quincy Avenue, between Livingston Drive and Shaw Street,

52. (South) Quincy Avenue, between Anaheim Street and Fourteenth Street,

53. (Southwest) Quincy Avenue, between Ocean Boulevard and Second Street,

54. (Counterclockwise) Rainbow Pier, from Seaside Boulevard and Pine Avenue to Seaside Boulevard and Linden Avenue,

55. (North) the east roadway of Redondo Avenue, between Second Street and Dodge Way,

56. (South) Roswell Avenue, between Ocean Boulevard and Livingston Drive,

57. (North) Roycroft Avenue, between Anaheim Street and Fifteenth Street,

58. (Northeast) Roycroft Avenue, between East Second Street and Livingston Drive,

59. (Northeast) Roycroft Avenue, between Ocean Boulevard and Second Street,

60. (Northeast) St. Joseph Avenue, between Ocean Boulevard and Livingston Drive,

61. (North) San Francisco Avenue, between Ocean Park Avenue and Sixth Street,

62. (South) San Francisco Avenue, between Seventh Street and Sixth Street,

63. (Southwest) Santa Ana Avenue, between Ocean Boulevard and The Toledo,

64. (Southwest) Syracuse Walk, between Naples Plaza and Via Di Roma Walk,

65. (North) The Toledo, between Second Street and Claremont Avenue,

66. (West) North frontage road of Willow Street, between the west line of Josie Avenue and a point five hundred fifty feet (550') to the west,

67. (North and east) Winnipeg Place, between Third Street and Obispo Avenue,

68. (South) Ximeno Avenue, between Ocean Boulevard and Livingston Drive,

69. (South) Zona Court, from Fifth Street to Fourth Street,

70. (North) Anaheim Place, from Fourteenth Street to Pacific Coast Highway,

71. (East) Wehrle Court, from Bennett Avenue to Ximeno Avenue,

72. (North) Kennebec Avenue, between Broadway and Third Street,

73. (South) Termino Avenue, between First Street and Livingston Drive,

74. (East) Division Street, between Bennett Avenue and Bay Shore Avenue,

75. (West) First Street, between Livingston Drive and Bay Shore Avenue,

76. (East) Sorrento Drive, between Second Street and Appian Way,

77. (South) Eliot Lane,

78. (Eastbound) Alta Way, between Lime Avenue and Marietta Court,

79. (North) Gaviota Avenue, between Fourth Street and Fifth Street,

80. (North) Savona Walk, between The Toledo and Naples Plaza,

81. Eleventh Street between the first alley east of Atlantic Avenue and Martin Luther King Jr. Avenue,

82. (South) Cerritos Avenue, between Ocean Boulevard and Third Street,

83. (South) Esperanza Avenue, between Ocean Boulevard and Third Street,

84. (North) Falcon Avenue, between Ocean Boulevard and Third Street,

85. (South) Gaviota Avenue, between Ocean Boulevard and Third Street,

86. (North) Hermosa Avenue, between Ocean Boulevard and Third Street,

87. (North) Bonito Avenue, between Ocean Boulevard and Third Street,

88. (East) The alley north of Pacific Coast Highway, between May Avenue and Walnut Avenue,

89. Mahanna Avenue between Tenth Street and Eleventh Street (northbound),

90. Earl Avenue between Hill Street and Eagle Street (southbound),

91. Locust Avenue between Hill Street and Eagle Street (northbound),

92. (East) Appleton Street, between Alamitos Avenue and Junipero Avenue,

93. Campo Walk between Campo Drive and Ravenna Drive (eastbound),

94. (East) First Street, between Alamitos Avenue and Junipero Avenue,

95. (West) Second Street, between Alamitos Avenue and Junipero Avenue,

96. (Northbound) Weston Place between Thirty-Fifth Street and Thirty-Sixth Street,

97. (Westbound) Corinthian Walk west of Ravenna Drive to The Toledo,

98. (Eastbound) Corinthian Walk east of Ravenna Drive to The Toledo,

99. (Northbound) Henderson Avenue between Cowles Street and Fifteenth Street,

100. (Northeast) Cordova Walk between Naples Plaza and Garibaldi Lane,

101. (Westbound) Vera Court between Junipero Avenue and Raymond Avenue,

102. (Westbound) Smith Place between Orange Avenue and its easterly terminus,

103. (Eastbound) Leigh Court between Orange Avenue and its easterly terminus,

104. (Northeastbound) Lucia Walk between Neapolitan Lane East and The Toledo,

105. (East) Theresa Street, between Roswell Avenue and Ximeno Avenue,

106. (Westbound) Seventeenth Street between Gaviota Avenue and Walnut Avenue,

107. (Eastbound) Fifty-Sixth Way between Langport Avenue and Paramount Boulevard,

108. (Westbound) Fifty-Sixth Street between Langport Avenue and Paramount Boulevard,

109. (Eastbound) Fifty-Fifth Way between Langport Avenue and Paramount Boulevard,

110. (Northbound) Langport Avenue between Fifty-Sixth Street and Fifty-Sixth Way,

111. (Southbound) Langport Avenue between Fifty-Sixth Street and Fifty-Fifth Way,

112. (Westbound) the Willow Street service road between Josie Avenue and a point five hundred feet (500') west of Josie Avenue,

113. (Westbound) Ninth Street between San Pablo Court and Orange Avenue,

114. (Westbound) Melrose Way between Atlantic Avenue and Linden Avenue,

115. (Eastbound) Seventeenth Street between Gaviota Avenue and Rose Avenue,

116. (Westbound) 55th Street between Linden Avenue and Long Beach Boulevard,

117. (Eastbound) Louise Street between Long Beach Boulevard and Linden Avenue,

118. (North) Norman Court, between 10th Street and 11th Street,

119. (South) Almond Court, between 10th Street and 11th Street.

B. Alleys:

1. (East) the alley north of Second Street between Park Avenue and Claremont Avenue,

2. (West) the alley south of East Second Street, between Quincy Avenue and Claremont Avenue,

3. (North) Alamo Court, between Ocean Boulevard and First Street,

4. (South) Alamo Court, between First Street and Seventh Street, except between Broadway and Third Street,

5. (West) Alta Way, between Pacific Avenue and Elm Avenue,

6. (South) Anaheim Place from Pacific Coast Highway to Fourteenth Street,

7. (North) the north-south alley west of Atlantic Avenue from Fifty-Sixth Street to South Street,

8. (East) the alley between Atlantic Avenue and the north-south interior alley and between Claiborne Drive and Cartagena Street,

9. (South) the alley between Bellflower Boulevard and San Anseline Avenue and between Stearns Street and El Paseo Street,

10. (West) Bronce Way, between Pacific Avenue and Elm Avenue,

11. (West) Cereza Way, between Pacific Avenue and Elm Avenue,

12. (West) Cobre Way, between Pacific Avenue and Elm Avenue,

13. (West) Maple Way, between Pacific Avenue and Elm Avenue,

14. (West) Melrose Way, between Pacific Avenue and Elm Avenue,

15. (West) Roble Way, between Pacific Avenue and Elm Avenue,

16. (South) Palmer Court, between Third Street and Fourth Street,

17. (South) Solana Court, between Ocean Boulevard and Seventh Street,

18. (North) Tribune Court between First Street and Alta Way,

19. (South) Tribune Court between Broadway and Third Street and between Sixth Street and Seventh Street,

20. (East) the alley between Virginia Road and a point one hundred sixty-five feet (165') west of Long Beach Boulevard and between San Antonio Drive and Claiborne Drive,

21. (North) Waite Court, between Ocean Boulevard and Third Street,

22. (South) Waite Court, between Tenth Street and a point one hundred sixty-five feet (165') northerly,

23. (West) Alta Way, between Lime Avenue and Marietta Court,

24. Repealed,

25. Eighth Street between Cherry Avenue and Junipero Avenue (westbound),

26. Corto Place between Obispo Avenue and Broadway (westbound),

27. Repealed,

28. Repealed,

29. Repealed,

30. (Westbound) the east-west alley between Nineteenth Street and Summit Street, from Santa Fe Avenue to the north-south alley one hundred feet (100') east of Santa Fe Avenue,

31. (Southeastbound) alley parallel to and southwest of Appian Way between Monrovia Avenue and Lakeview Avenue,

32. (Eastbound) Melrose Way between Elm Avenue and Frontenac Court,

33. (North) Ancona Drive between the east-west alley immediately north of Second Street and Sorrento Drive,

34. (South) north-south alley between Pacific Avenue and Pine Avenue and between Hill Street and the east-west alley south of Hill Street,

35. (Southbound) north-south alley between Alamitos Avenue and Cerritos Avenue and between Tenth Street and Hellman Street. (ORD-19-0019 §§ 1, 2, 2019; ORD-15-0006 §§ 1, 2, 2015; ORD-14-0007 § 1, 2014; ORD-07-0030 § 1, 2007; ORD-06-0048 § 1, 2006; ORD-06-0014 § 1, 2006; ORD-05-0029 § 1, 2005; Ord. C-7947 § 1, 2004; Ord. C-7861 § 1, 2003; Ord. C-7843 § 1, 2003; Ord. C-7696 § 1, 2000; Ord. C-7680 § 1, 2000; Ord. C-7638 § 1, 1999; Ord. C-7554 § 2, 1998; Ord. C-7396 § 2, 1996; Ord. C-7390 § 1, 1996; Ord. C-7348 § 1, 1995; Ord. C-7334 § 6, 1995; Ord. C-7259 §§ 1, 2, 1994; Ord. C-7216 § 1, 1994; Ord. C-7171 § 1, 1993; Ord. C-7141 § 1, 1993; Ord. C-7138 § 1, 1993; Ord. C-7053 § 1, 1992; Ord. C-7048 § 1, 1992; Ord. C-6939 § 1, 1991; Ord. C-6914 § 1, 1991; Ord. C-6797 §§ 3, 7, 1990; Ord. C-6754 § 1, 1990; Ord. C-6697 § 1, 1990; Ord. C-6610 § 1, 1989; Ord. C-6564 § 2, 1989; Ord. C-6562 § 1, 1989; Ord. C-6544 § 4, 1988; Ord. C-6504 § 1, 1988; Ord. C-6492 § 1, 1988; Ord. C-6485 § 2, 1988; Ord. C-6440 § 1, 1987; Ord. C-6435 § 1, 1987; Ord. C-6387 § 1, 1987; Ord. C-6374 § 1, 1987; Ord. C-6364 § 1, 1987; Ord. C-6362 § 1, 1987; Ord. C-6354 § 1, 1987; Ord. C-6291 § 1, 1986; Ord. C-6268 § 1, 1986; Ord. C-6125 § 2, 1985; Ord. C-6043 § 1, 1984; Ord. C-5918 §§ 1, 2, 1982; Ord. C-5900 § 3, 1982; Ord. C-5886 § 1, 1982; Ord. C-5795 § 2, 1981; Ord. C-5769 § 3, 1981; Ord. C-5711 § 2, 1981; Ord. C-5674 § 2, 1981; Ord. C-5491 § 3, 1979; Ord. C-5390 § 5, 1978; Ord. C-5365 § 1 (part), 1977; Ord. C-5361 §§ 1, 2, 1977; Ord. C-5334 § 3 (part), 1977; prior code § 3410.128)

CHAPTER 10.16 STREETS CLOSED ADJACENT TO SCHOOLS

10.16.010 Fifty-Third Street near Jane Addams School.

Beginning at the west line of Locust Avenue as the same intersects Fifty-Third Street in the City, all Fifty-Third Street included within a distance of two hundred ninety-four feet (294') immediately west of the west line of Locust Avenue shall be closed to vehicular traffic between the hours of 8:00 a.m. and 4:30 p.m. of any day that the Jane Addams School or playground is in official use, and no person shall operate any vehicle within said closed area during such hours. (Prior code § 3410.71 (a))

10.16.020 Caspian Avenue near Garfield School.

Beginning at the north line of Hill Street as the same intersects Caspian Avenue in the City, all of Caspian Avenue included between the north line of Hill Street and the south line of Twenty-Third Street shall be closed to vehicular traffic between the hours of 8:00 a.m. and 5:00 p.m. of every weekday that the Garfield School or playground is in official use, and said described portion of Caspian Avenue shall be closed between the hours of 8:00 a.m. and 12:00 noon of every Saturday that the Garfield School or playground is in official use.

No operator of any vehicle shall drive his vehicle in or upon said described portion of Caspian Avenue during the hours set forth in this Section. (Prior code § 3410.71 (b))

10.16.030 Marron Avenue near St. Barnabas School.

Marron Avenue, between the south side of the intersection of Marshall Place and the north side

of the intersection of Marron Place, shall be closed to vehicular traffic between the hours of 8:30 a.m. and 4:30 p.m., and to pedestrian traffic between the hours of 8:30 a.m. and 2:45 p.m., of any day that St. Barnabas School is in session or official use. No person shall operate any vehicle upon such portion of Marron Avenue during such hours that vehicular traffic is prohibited. (Ord. C-7851 § 1, 2003; prior code § 3410.71 (c))

10.16.040 Linden Avenue near St. Athanasius School.

Linden Avenue, between the south side of the intersection of Market Street and the north side of the intersection of Plymouth Street, between the hours of 7:00 a.m. and 3:30 p.m. (Ord. C-7847 § 1, 2003)

CHAPTER 10.18 VEHICLES RESTRICTED FROM STREETS*

10.18.010 Vehicles prohibited in central traffic district.

No person shall operate any of the following vehicles in the central traffic district, except on

*State law reference—Provisions on regulation of highways by local authorities, Veh. C. § 21101.

designated truck routes, between the hours of 7:00 a.m. and 6:00 p.m. of any day; provided, that the Chief of Police may, by written permit, authorize the operation of any such vehicle for the purpose of making necessary emergency deliveries to or from points within the central traffic district:

A. Any freight vehicle more than eight and one-half feet (8½') in width with load, or any freight vehicle so loaded that any part of its load extends more than twenty feet (20') to the front or rear of said vehicle;

B. Any freight vehicle with a trailer;

C. Any freight vehicle carrying crude oil. (Prior code § 3410.115)

10.18.020 Animal-drawn vehicles prohibited in central traffic district.

No person shall drive any animal-drawn vehicle into, or within, the central traffic district, between the hours of 7:00 a.m. and 6:00 p.m. of any day. (Prior code § 3410.117)

10.18.030 Advertising vehicles prohibited in central traffic district.

No person shall operate or drive any vehicle used for advertising purposes, or any advertising vehicle equipped with a sound amplifying or loudspeaker device, upon any street or alley, at any time, within the central traffic district. (Prior code § 3410.119)

10.18.040 Living in vehicles prohibited.

No person shall use or occupy any recreational vehicle, trailer coach, camper, van or other vehicle on any public street for human habitation or camping purposes. (Ord. C-6139 § 1, 1985)

10.18.050 Mobile billboard advertising vehicle prohibited.

A. Purpose. The purpose of this Section is to eliminate billboard advertising in the City in order to promote the safe movement of vehicular traffic, to reduce air pollution and to improve the aesthetic appearance of the City.

B. General requirements. It is unlawful for any person to conduct, or cause to be conducted, any mobile billboard advertising upon any street, or other public place within the City in which the public has the right of travel.

C. Parking. It is unlawful for any person to conduct or cause to be conducted by stopping, standing or parking, any mobile billboard advertising upon any street, or other public place within the City in which the public has the right of travel.

D. Definition. Mobile billboard advertising includes any vehicle or wheeled conveyance which carries, conveys, pulls or transports any sign or billboard for the primary purpose of advertising.

E. Exemptions. This Section shall not apply to:

1. Any vehicle which displays any advertisement or business identification of its owner, so long as such vehicle is engaged in the usual business or regular work of the owner, and not used merely, mainly or primarily to display advertisements;

2. Buses; or

3. Taxicabs.

(ORD-09-0021, § 31, 2009)

CHAPTER 10.20 SPECIAL STOPS*

10.20.010 Designation of stop intersections.

A. Whenever any provision of this Chapter designates and describes any street, or portion thereof, as a through street, or any intersection at which vehicles are required to stop at one (1) or more entrances thereto, the Traffic Engineer shall place and maintain stop signs giving notice thereof, as follows:

A stop sign shall be erected on each and every street intersecting such through street, or portion thereof, so designated, and at those entrances of other intersections where a stop is required, provided the intersection is not controlled by an automatic signaling device. Every such sign shall conform with and shall be placed as provided in Section 21400 of the Vehicle Code.

B. Whenever any hazardous traffic conditions prevail, including, but not limited to, the

***State law reference**—Provisions on special stops, Veh. C. § 22450 et seq.

hazard resulting from street construction or repair, the Traffic Engineer may designate any highway as a through highway, or any intersection as a stop intersection, for a period not to exceed sixty (60) days. Upon the erection of stop signs in accordance with the provisions of this Section all traffic shall stop before entering such through highway, and all traffic shall stop at the entrance to the stop intersections.

C. No driver or operator of any vehicle shall fail to stop such vehicle at least fifty feet (50') from the nearest side of a marked pedestrian lane whenever a signal device or sign with words "STOP—L.B.P.D." is displayed at such place, and further, no driver or operator of said vehicle shall proceed until such signal has been removed or until a signal to proceed is given. The Chief of Police and the Traffic Engineer are authorized and directed to place a line or mark upon the highway at least fifty feet (50') from any marked pedestrian lane where such signal device or sign is to be operated or given, said fifty feet (50') to be measured in the direction of approaching traffic. (Prior code § 3410.45)

10.20.020 Through streets declared.

Those streets, and parts of streets, described in Section 10.20.060 are declared to be through streets for the purpose of this Chapter. (Prior code § 3410.46)

10.20.030 Stop intersections designated.

The City Traffic Engineer is authorized to designate any intersection as a stop intersection in accordance with Subsection 10.08.010.C. (ORD-09-0021, § 18, 2009; Ord. C-7750 § 4, 2001; prior code § 3410.47)

10.20.040 Emerging from alley, driveway or building.

The driver of a vehicle emerging from an alley, driveway or building shall stop such vehicle immediately prior to driving on a sidewalk or into the sidewalk area extending across any alley or driveway. (Prior code § 3410.48)

10.20.050 Yield intersections.

The Traffic Engineer is authorized to place and maintain "Yield Right-of-Way" signs at intersections in accordance with Section 21356 of the Vehicle Code. (Ord. C-7750 § 5, 2001; prior code § 3410.49)

10.20.060 Through streets enumerated.

A. For the purpose of Section 10.20.020, the following streets, and portions of streets, are declared to be through streets:

1. Long Beach Boulevard, between the south line of Ocean Boulevard and the northerly boundary line of the City;

2. Anaheim Street, between the westerly boundary line of the City and Pacific Coast Highway, except at its intersection with the northeast and southwest exit ramps along the Long Beach Freeway;

3. Atlantic Avenue, between the south line of First Street and the northerly boundary line of the City;

4. Ocean Boulevard, between the east line of the entrance channel to the harbor and the east line of Bay Shore Avenue;

5. Livingston Drive, between the north line of Ocean Boulevard and the south line of Broadway;

6. Second Street, between Alamitos Avenue and the easterly boundary line of the City, except at its intersection with Temple Avenue, Junipero Avenue, Cherry Avenue, Orange Avenue and Pacific Coast Highway;

7. Pacific Avenue, between the north line of Ocean Boulevard and the south line of Thirty-Second Street, except at its intersection with Broadway; and between the north line of Wardlow Road and the north line of San Antonio Drive;

8. Ximeno Avenue, between the north line of Ocean Boulevard and the south line of Los Coyotes Diagonal, except at its intersection with Livingston Drive and Pacific Coast Highway;

9. Pacific Coast Highway, between the easterly boundary line of the City and the westerly boundary line of the City;

10. Fourth Street, between the west line of Park Avenue and the east line of Golden Avenue, except at its intersection with Cedar Avenue and Magnolia Avenue;

11. Cherry Avenue, between the north line of Ocean Boulevard and the northerly boundary line of the City;

12. Orange Avenue, between the north line of Ocean Boulevard and the northerly boundary line of the City;

13. Those portions of Paramount Boulevard within the City;

14. Seventh Street, between the easterly boundary line of the City and the westerly boundary line of the City, except at its intersection with Long Beach Boulevard and Pico Avenue;

15. Artesia Street, between the easterly boundary line of the City and the westerly boundary line of the City;

16. Pico Avenue, between Panorama Drive and the north line of Ninth Street, except at its intersection with First Street;

17. Those portions of Willow Street within the City, between the westerly boundary line of the City and the easterly boundary line of the City, except at its intersection with Lakewood Boulevard, Los Coyotes Diagonal, Palo Verde Avenue and Studebaker Road;

18. Santa Fe Avenue, from the south line of Ninth Street to the northerly City limits;

19. Seaside Boulevard:

a. Between westerly City boundary and east line of Pico Avenue, except at its intersection with the Terminal Island Freeway,

b. Between the east line of Pine Avenue and the west line of Linden Avenue;

20. Third Street, from the east line of the Los Angeles River flood control channel to the west line of Nieto Avenue, except at its intersection with Cedar Avenue, Pine Avenue, Atlantic Avenue, Alamitos Avenue, Cherry Avenue, and Long Beach Boulevard;

21. Tenth Street, between the east line of Federation Drive and the west line of Maine Avenue;

22. Those portions of San Antonio Drive within the City, between the east line of Cherry Avenue and the west line of Country Club Drive;

23. Alamitos Avenue, between the north line of Ocean Boulevard and the west line of Walnut Avenue, except at its intersection with Broadway, Third Street, Fourth Street, California Avenue, Seventh Street, Tenth Street, Anaheim Street, Seventeenth Street and Pacific Coast Highway;

24. Pine Avenue, between the south line of Ocean Boulevard and the south line of Willow Street, except at its intersection with Seventh Street, Anaheim Street, Pacific Coast Highway, Twentieth Street and Hill Street; and Pine Avenue at its intersection with Roosevelt Road;

25. Park Avenue, between the north line of Ocean Boulevard and the north line of Tenth Street, except at its intersection with Livingston Drive;

26. Magnolia Avenue, between the north line of Ocean Boulevard and the north line of Thirty-Eighth Street;

27. Dairy Avenue, from the south line of Louise Street to the north line of Fifty-Seventh Street, except at its intersection with Fifty-Sixth Street;

28. Those portions of South Street within the City, between the west line of Locust Avenue and the easterly boundary line of the City;

29. Wardlow Road, between the west City limits and a point one-half (1/2) mile east of the east line of Cherry Avenue, and between the west line of the north-south roadway located one thousand fifty feet (1,050') west of Lakewood Boulevard and the east City boundary line, except at its intersection with Lakewood Boulevard, Bellflower Boulevard, Los Coyotes Diagonal and Studebaker Road;

30. Market Street, from the west line of Cherry Avenue to the west line of Pacific Avenue, except at its intersection with Long Beach Boulevard, Atlantic Avenue, Orange Avenue and Walnut Avenue;

31. Redondo Avenue, from the north line of Ocean Boulevard to the south line of Spring Street;

32. Temple Avenue, from the north line of Ocean Boulevard to the northerly City limits;

33. Carson Street, from the east line of Cherry Avenue to Long Beach Boulevard;

34. Broadway, from Water Street to Bay Shore Drive, except at its intersection with Pico Avenue;

35. Henry Ford Avenue, from the north line of Seaside Boulevard to the northerly boundary line of the City;

36. Dock Street, from the west City limits to Henry Ford Avenue;

37. Spring Street, between the easterly and westerly boundary lines of the City, except at its intersection with Atlantic Avenue, Redondo Avenue and Clark Avenue;

38. Harding Street, between the east line of Cherry Avenue and the west line of DeForest Avenue;

39. Ravenna Drive, between the north line of The Toledo and the north line of Second Street;

40. Those portions of Bellflower Boulevard within the City, between the northerly boundary line of the City and the southerly boundary line of the City;

41. Burnett Street, Between Webster Avenue and Gale Avenue, except at its intersection with Santa Fe Avenue and Easy Avenue;

42. Bixby Road, between the east line of Country Club Drive and the east line of the west service road of Cherry Avenue;

43. Appian Way, between Park Avenue and the southerly terminus of Appian Way near Lido Lane;

44. Those portions of Los Coyotes Diagonal within the City, between Los Alamitos Circle and Carson Street;

45. Twentieth Street, between the west line of San Francisco Avenue and the west line of Orange Avenue;

46. Hill Street, between the east line of the Los Angeles River flood control channel and the west line of Orange Avenue;

47. Roosevelt Road, between the east line of Cerritos Avenue and the east line of Long Beach Boulevard, except at its intersection with California Avenue and Atlantic Avenue;

48. Fifty-Second Street, between the west line of Atlantic Avenue and the westerly City limits, and between the east line of Orange Avenue and the west line of Walnut Avenue;

49. Junipero Avenue, between the north line of Ocean Boulevard and the south line of Pacific Coast Highway, except at its intersection with Broadway, Fourth Street, Seventh Street and Anaheim Street;

50. Martin Luther King, Jr. Avenue, between the north line of Seventh Street and the southerly boundary line of the City of Signal Hill, except at its intersection with Tenth Street; California Avenue, at its intersection with Thirty-Sixth Street and Thirty-Seventh Street; California Avenue, between the north line of Bixby Road and the north line of Forty-Fifth Way, except at its intersection with Carson Street, San Antonio Drive and Marcellus Street;

51. Thirty-Fourth Street, between Santa Fe Avenue and the east line of Gale Avenue;

52. Those portions of Del Amo Boulevard within the City, between the east boundary line and the west boundary line of the City, except at its intersection with Long Beach Boulevard, Atlantic Avenue, Orange Avenue, Cherry Avenue and Lakewood Boulevard;

53. Locust Avenue, between the north line of Ocean Boulevard and the north line of Twelfth Street, except at its intersection with Broadway, Third Street, Fourth Street and Seventh Street; and Locust Avenue, between the south line of Fourteenth Street south and the north line of Sixteenth Street;

54. Granada Avenue, between the north line of Ocean Boulevard and the southwest line of The Toledo, except at its intersection with Second Street;

55. Stearns Street, between the east line of Redondo Avenue and the west line of Stevely Avenue, except at its intersection with Lakewood Boulevard, Los Coyotes Diagonal and Bellflower Boulevard;

56. Atherton Street, between the outer traffic circle of the Los Alamitos Circle, and the east boundary line of the City, except at its intersection with Ximeno Avenue and Bellflower Boulevard;

57. Walnut Avenue, from the north line of Third Street to the south line of Carson Street, and from the south line of Fifty-Second Street to the south line of Sixty-Eighth Street, except at its intersection with Fourth Street, Seventh Street, Tenth Street, Anaheim Street, Pacific Coast Highway, Wardlow Road, Bixby Road, west side of Fifty-Second Street, Market Street, South Street, Harding Street and Artesia Street;

58. Termino Avenue, between the north line of Livingston Drive and the south line of Pacific Coast Highway, except at its intersection with Second Street, Broadway, Third Street, Fourth Street, Seventh Street, Tenth Street and Anaheim Street;

59. Mira Mar Avenue, between the north line of Livingston Drive and the south line of Third Street, except at its intersection with First Street, Second Street and Broadway;

60. Nieto Avenue, between the north line of Ocean Boulevard and the south line of Second Street, and between the south line of Broadway and the south line of Colorado Street;

61. Colorado Street, between the east line of Temple Avenue and the east line of the City, except at its intersection with Redondo Avenue, Termino Avenue, Ximeno Avenue and Appian Way;

62. Fanwood Avenue, between the north line of Atherton Street and the south line of Marita Street, and at its intersection with the north service road of Stearns Street;

63. Hill Street, between the west line of Merrimac Avenue and the west line of the flood control channel, except at its intersection with Santa Fe Avenue and Easy Avenue;

64. Delta Avenue, between the north line of Wardlow Road and the south line of Two Hundred Twenty-Third Street;

65. Easy Avenue, between the south line of Wardlow Road and the south line of Twentieth Street, except at its intersection with Spring Street and Willow Street;

66. Harbor Avenue, between the north line of Twentieth Street and the north line of Ninth Street, except at its intersection with Pacific Coast Highway and Anaheim Street;

67. Panorama Drive, between Pierpoint Traffic Circle and Harbor Scenic Drive;

68. Willard Street, between the west line of Santa Fe Avenue and the east line of San Gabriel Avenue;

69. Twentieth Street, between the east line of Gale Avenue and the east line of San Gabriel Avenue, except at its intersection with Santa Fe Avenue;

70. Nineteenth Street, between the west line of Santa Fe Avenue and the east line of San Gabriel Avenue;

71. San Gabriel Avenue, between the north line of Pacific Coast Highway and the north line of Willard Street;

72. Merrimac Avenue, between the north line of Willard Street and the south line of Hill Street;

73. Those portions of Clark Avenue within the City, between Pacific Coast Highway and the northerly boundary line of the City, except Los Coyotes Diagonal and Carson Street;

74. Harvey Way, between Lakewood Boulevard and Bellflower Boulevard, except Clark Avenue;

75. Norse Way, between Carson Street and Lakewood Boulevard;

76. Those portions of Palo Verde Avenue within the City, between the northerly and southerly boundary lines of the City, except Spring Street;

77. Village Road, between Charlemagne Avenue and Viking Way, and at its intersection with Pepperwood Avenue and Greenmeadow Road;

78. Studebaker Road, between the southeast line of Los Coyotes Diagonal and the north line of Seventh Street, except at its intersection with Spring Street;

79. Chestnut Avenue, between Fifty-Fifth Street and DeForest Avenue, except at its intersection with Fifty-Sixth Street;

80. Anaheim Road, between the east line of Clark Avenue and the west line of Bellflower Boulevard; and between the west line of Palo Verde Avenue and the easterly boundary line of the City, except at its intersection with Studebaker Road;

81. First Street, between Pacific Avenue and Alamitos Avenue, except at its intersection with Pine Avenue, Locust Avenue, Long Beach Boulevard and Atlantic Avenue; and First Street, between the east line of Livingston Drive and the west line of Bay Shore Avenue, except at its intersection with Bennett Avenue, Ximeno Avenue, Roycroft Avenue, Park Avenue, Granada Avenue, Nieto Avenue, La Verne Avenue, Glendora Avenue, Santa Ana Avenue and Claremont Avenue;

82. Hayes Avenue, between Anaheim Street and Pacific Coast Highway;

83. Those portions of Woodruff Avenue within the City, between the south line of Carson Street and the east line of Palo Verde Avenue, except where such portions intersect Los Coyotes Diagonal, Spring Street and Willow Street;

84. Downey Avenue, between the north line of South Street and the north line of Seventieth Street, except at its intersection with Artesia Street;

85. Those portions of Obispo Avenue within the City, between Hill Street and Broadway, except at its intersection with Pacific Coast Highway, Anaheim Street, Tenth Street, Seventh Street, Fourth Street and Third Street;

86. Bay Shore Avenue, between the north line of Ocean Boulevard and the southwest line of Appian Way, except at its intersection with Second Street;

87. Claremont Avenue, between the north line of Ocean Boulevard and the south line of Second Street;

88. Santa Ana Avenue, between the north line of Ocean Boulevard and the south line of Second Street;

89. Glendora Avenue, between the north line of Ocean Boulevard and the south line of Second Street;

90. La Verne Avenue, between the north line of Ocean Boulevard and the south line of Second Street;

91. Roycroft Avenue, between the north line of Ocean Boulevard and the south line of Second Street;

92. Bennett Avenue, between the north line of Ocean Boulevard and the south line of Livingston Drive;

93. Division Street, between Livingston Drive and Bay Shore Avenue, except at its intersection with Ximeno Avenue, Roycroft Avenue, Park Avenue, Granada Avenue, Nieto Avenue, La Verne Avenue, Glendora Avenue, Santa Ana Avenue and Claremont Avenue;

94. Conant Street, between the east line of Lakewood Boulevard and the west line of Los Coyotes Diagonal, except at its intersection with Woodruff Avenue;

95. Monlaco Road, between the east line of Clark Avenue and Palo Verde Avenue, except at its intersection with Woodruff Avenue;

96. Los Coyotes Diagonal, between Woodruff Avenue and Palo Verde Avenue, except at its intersection with Wardlow Road;

97. Oregon Avenue, between Anaheim Street and Pacific Coast Highway;

98. Forty-Fifth Street, between the east line of Long Beach Boulevard and the west line of California Avenue, except at its intersection with Atlantic Avenue;

99. Those portions of Marina Drive within the City;

100. Burnett Street, between the west line of San Francisco Avenue and the west line of Olive Avenue, except at its intersection with Magnolia Avenue, Pacific Avenue, Pine Avenue, Long Beach Boulevard and Atlantic Avenue;

101. Windham Avenue, between Harbor Scenic Drive and Panorama Drive;

102. Harbor Scenic Drive, between Pico Avenue and Dike Road;

103. Tenth Street, between the north line of Ninth Street and the west line of Pico Avenue;

104. Ninth Street, between the east line of Santa Fe Avenue and the west line of Pico Avenue;

105. Fashion Avenue, between the south line of Eleventh Street and the north line of Ninth Street, except at its intersection with Tenth Street;

106. Vista Street, between Obispo Avenue and Nieto Avenue, except at its intersection with Redondo Avenue, Mira Mar Avenue, Termino Avenue, Ximeno Avenue and Park Avenue;

107. The southwest frontage road of Appian Way, between the north line of Cordova Walk and the south line of Lido Lane, except at its intersection with The Toledo;

108. Naples Plaza, between Second Street and the south line of The Toledo;

109. North service road of Second Street, between Padua Drive and Sorrento Drive, except at its intersection with San Marco Drive, Ravenna Drive, Ancona Drive, Campo Drive and Venetia Drive;

110. The Toledo, between Livingston Drive and Appian Way, except at its intersection with Second Street, Ravenna Drive and Naples Plaza;

111. The west frontage roads of the Long Beach Freeway, between Gordon Street and Butler Avenue and between Sixty-Eighth Way and Atlantic Drive;

112. Sixty-Eighth Way, between Butler Avenue and the west frontage road of the Long Beach Freeway;

113. Butler Avenue, between Sixty-Eighth Way and the east line of the west frontage road of the Long Beach Freeway at the southerly terminus of Butler Avenue, except the south approach of the frontage road;

114. Seventieth Street, between Downey Avenue and Paramount Boulevard;

115. Loma Avenue, between the south line of Pacific Coast Highway and the north line of Anaheim Street; and at Eleventh Street, Eighth Street, Sixth Street, Fifth Street and Vermont Street;

116. Harbor Avenue, between the north line of Artesia Street and the south line of Greenleaf Drive;

117. Obispo Avenue, between South Street and Seventieth Street;

118. Muriel Avenue, between Adams Street and the northerly City limits, except at the intersections of Neece Street and Artesia Boulevard;

119. Twenty-Third Street, between Los Coyotes Diagonal and Ocana Avenue, except at its intersection with Bellflower Boulevard;

120. Sixth Street, between Park Avenue and Manila Avenue, except at its intersection with Santiago Avenue;

121. Bloomfield Avenue, between the southerly and northerly boundaries of the City;

122. First Street, between Alamitos Avenue and Livingston Drive, except at its intersection with Orange Avenue, Cherry Avenue, Junipero Avenue, Temple Avenue, Redondo Avenue and Termino Avenue;

123. The north frontage road of Seventh Street, between the east line of Studebaker Road and the easterly City boundary;

124. Atlantic Way, between Atlantic Avenue and the northerly boundary line of the City;

125. Pacific Way, between Thirty-Second Street and Wardlow Road;

126. Vista Street, between the west line of Monrovia Avenue and Bay Shore Avenue;

127. Thirty-Seventh Street, between Long Beach Boulevard and Cherry Avenue, except at its intersection with Atlantic Avenue, California Avenue, Orange Avenue and Walnut Avenue;

128. Appleton Street, between Alamitos Avenue and Junipero Avenue, except at its intersection with Orange Avenue and Cherry Avenue;

129. Fourteenth Street, between Walnut Avenue and Temple Avenue, except at its intersection with Rose Avenue, Cherry Avenue and Junipero Avenue;

130. Loynes Drive, between Pacific Coast Highway and Studebaker Road;

131. Twenty-Seventh Street, between Long Beach Boulevard and Atlantic Avenue;

132. Tehachapi Drive, between Orange Avenue and Cherry Avenue;

133. Golden Avenue, between Willow Street and Spring Street, except at its intersection with Twenty-Eighth Street;

134. Coachella Avenue-Atlantic Drive, between Marker Street and Greenleaf Boulevard;

135. Thirty-Sixth Street, between Atlantic Avenue and Cherry Avenue, except at its intersection with California Avenue, Orange Avenue and Walnut Avenue;

136. Mezzanine Way, between Bellflower Boulevard and San Anselme Avenue;

137. New York Street, between the east line of Atlantic Avenue and the west line of Alamitos Avenue, except at its intersection with California Avenue;

138. Nineteenth Street, between Atlantic Avenue and California Avenue;

139. Country Club Drive, between San Antonio Drive and Pacific Avenue;

140. Del Mar Avenue, between Spring Street and Pacific Avenue;

141. Linden Avenue, between South Street and Harding Street;

142. Fifteenth Street, between Cherry Avenue and Junipero Avenue;

143. Thirty-Sixth Street, between Pacific Avenue and Long Beach Boulevard. (Ord. C-7397 § 1, 1996; Ord. C-5537 § 2, 1979; Ord. C-5268 § 1 (part), 1976; Ord. C-5247 § 2 (part), 1976; prior code § 3410.126)

CHAPTER 10.22
PARKING—REGULATIONS*

10.22.010 Applicability.

A. The provisions of this Code prohibiting the stopping, standing or parking of a vehicle shall apply at all times, or at those times specified in this Chapter and Chapter 10.24, except when it is necessary to stop a vehicle to avoid conflict with other traffic, or in compliance with the directions of a Police Officer or official traffic-control device.

B. The provisions of this Code imposing a time limit on standing or parking shall not relieve any person from the duty to observe other and more restrictive provisions of the California Vehicle Code or the Code of this City, prohibiting or limiting the standing or parking of vehicles in specified places or at specified times.

C. In the event a vehicle is stopped, parked or left standing in violation of any of the provisions of this Code or the California Vehicle Code, any officer of the Police Department may remove the vehicle from the street in the manner and subject to the requirements set forth in this Code and the California Vehicle Code. (Prior code § 3410.85)

***State law reference**—Provisions on stopping and parking, Veh. C. § 22500 et seq.

10.22.020 Parkways and sidewalks.

No person shall stop, stand or park a vehicle within any parkway or sidewalk. (Ord. C-6158 § 2, 1985; prior code § 3410.86)

10.22.025 Parking in front of private driveways.

A. Notwithstanding any other provisions of this Code or of the California Vehicle Code § 22500(e), and pursuant to California Vehicle Code § 22507.2, the owner or lessee of property in the parking impacted area, as that term is defined below, may park a vehicle in front of the owner's or lessee's private driveway when the vehicle displays a permit (the "driveway parking permit") issued pursuant to this Section, provided that no such permit may be issued or continue in effect pursuant to this Chapter to permit parking in any private driveway or any street or side of any street where parking is otherwise restricted by time, days or as to specified hours.

B. Driveway parking permits shall be subject to the following conditions:

1. The driveway for which the driveway parking permit is sought must be designated for the exclusive use of one (1) household.

2. The driveway for which the driveway parking permit is sought must be at least eight feet (8') in width.

3. Issuance of a driveway parking permit does not guarantee a parking space if there is insufficient space between other legally parked vehicles.

4. Driveway parking permits are address and location specific. They may be transferred between vehicles registered to the same address.

5. Driveway parking permits shall be issued by the department of public works, office of the City Traffic Engineer on a calendar year basis, and each such permit shall expire at midnight (12:00 a.m.), December 31st next following its issuance. The fee charged for driveway parking permits issued for less than twelve (12) months may be reduced in proportion to the time already elapsed in the current calendar year for which the permit

would be valid. Fees paid for permits which are revoked by the City Traffic Engineer may not be refunded. Permits may be renewed annually by mail.

6. A driveway parking permit will not be issued for driveways located within twenty-five feet (25') of a corner or within fifteen feet (15') of a fire hydrant.

7. A driveway parking permit will not be issued where parking in front of such driveway would pose a safety hazard, in the opinion of the City Traffic Engineer.

8. A driveway parking permit may be revoked at any time by the City Traffic Engineer.

C. Parking in front of private driveways may be permitted only in the parking impacted area, as that term is defined in Resolution No. C-24607, adopted by the Long Beach City Council on December 13, 1988, as it may be amended from time to time, on file in the office of the Director of Development Services.

D. Applications for driveway parking permits shall be reviewed and if appropriate, approved by the City Traffic Engineer. An application for driveway parking permits shall require, at a minimum, the following information:

1. Name of the applicant for the driveway parking permit;

2. Address of the property where the driveway is located;

3. A certification that the applicant's household is the exclusive user of the driveway;

4. Name and endorsement of the property owner or the owner's duly authorized property manager;

5. Identification of household vehicles, including license number, make and year of each vehicle registered at that address or to the household;

6. Identification of off-street parking spaces available on the property;

7. A certification stating the reason existing off-street parking at the property is insufficient to meet the applicant's parking needs;

8. Such additional information as the City Traffic Engineer may require; and

9. The statement that misuse of a permit issued under this Section is grounds for revocation of the permit by the City Traffic Engineer.

E. Every applicant for a driveway parking permit pursuant to this Section shall be required to pay a nonrefundable fee to cover the cost of receiving, processing and acting upon the application in an amount established by resolution of the City Council, which may be amended from time to time.

F. Driveway parking permits shall be displayed so as to be readily visible from the rearview mirror or by such other method as directed in instructions contained in the permit itself.

G. The City Traffic Engineer may, from time to time, promulgate rules and regulations, consistent with the purposes and provisions of this Section 10.22.025, to facilitate implementation of the section.

H. Nothing in this Section shall be construed to authorize parking on a sidewalk in violation of the California Vehicle Code § 22500(f). (ORD-10-0002, § 1, 2010; Ord. C-6506 § 1, 1988)

10.22.030 Storing vehicles on-streets prohibited.

A. No person, who owns or has possession, custody or control of any vehicle, shall park such vehicle upon any street or alley for more than a consecutive period of seventy-two (72) hours.

B. In the event a vehicle is parked or left standing upon a street in excess of a consecutive period of seventy-two (72) hours, any officer of the Police Department may remove the vehicle from the street in the manner and subject to the requirements set forth in the California Vehicle Code. (Prior code § 3410.87)

10.22.040 Parking on one-way streets.

Subject to other and more restrictive limitations, a vehicle may be stopped or parked within eighteen inches (18") of the left curb facing in the direction of traffic movement upon any one-way street, unless signs are in place prohibiting such stopping or standing. (Prior code § 3410.88)

10.22.050 Parking space precedence.

A. Any person intending to park his vehicle in a limited curb parking space, whose vehicle arrives at the parking space prior to any other vehicle, and the rear end of whose vehicle proceeds beyond the space a distance not to exceed ten feet (10') for the purpose of backing his vehicle therein, shall have the right-of-way over any person driving, or attempting to drive, any other vehicle directly into such limited curb parking space, or who in any manner obstructs the limited curb parking space, and the driver of the other vehicle shall yield the right-of-way to the driver who first arrived at the parking space.

B. For the purpose of this Section, a "limited curb parking space" means an area open for lawful parking adjacent to a curb, which area is not of sufficient length to permit two (2) or more vehicles to freely move for parking therein at the same time. (Prior code § 3410.89)

10.22.060 Places parking is prohibited.

A. No operator of a vehicle shall stop, park or leave standing such vehicle in any of the following places, except when necessary to avoid conflict with other traffic or at the direction of Police Officer or a traffic sign or signal:

1. In any marked taxicab stand, except taxicabs;

2. Upon or across any car tracks so as to delay street or railway cars;

3. In front of the entrances of any undertaking establishment, except for funeral vehicles;

4. At any place within twenty feet (20') of a point on the curb immediately opposite the midblock end of a safety zone; provided, however, that in the parking impacted area as defined in Resolution No. 24607, adopted December 13, 1988, as it may be amended from time to time, or on one-way streets, the City Traffic Engineer in his discretion may reduce the length of "no parking" distances;

5. At any place within twenty feet (20') of a marked crosswalk, except that a bus may stop at a designated bus stop; provided, however, that in the parking impacted area or on one-way streets, the City Traffic Engineer in his discretion may reduce the length of "no parking" distances;

6. At any place where the City Traffic Engineer determines that it is necessary in order to eliminate dangerous traffic hazards;

7. Upon any street so as to obstruct the free use thereof;

8. At the curb in front of any hospital;

9. Within four feet (4') of the prolongation of the nearest edge of a driveway; provided, however, that in the parking impacted area, the City Traffic Engineer in his discretion may reduce the length of "no parking" distances adjacent to driveways if doing so would increase on-street parking availability or access;

10. At any place within fifteen feet (15') of a fire hydrant; provided, however, that in the parking impacted area, the City Traffic Engineer in his discretion may reduce the length of "no parking" distances adjacent to fire hydrants with the concurrence of the Fire Marshall;

11. At any place within twenty feet (20') of the approach to an intersection or ten feet (10') of the departure to an intersection, in order to allow for visibility of traffic control devices and to maintain visibility of cross traffic; provided, however; that in the parking impacted area, opposite the termination of a street at a "T" intersection or on one-way streets, the City Traffic Engineer in his discretion may reduce the length of "no parking" distances.

B. The City Traffic Engineer shall appropriately sign or mark the places enumerated in this Section.
(ORD-09-0021, § 19, 2009; Prior code § 3410.91)

10.22.070 Blocking wheels on hill.

No person shall park, or leave standing, any vehicle unattended on a highway when upon any grade exceeding three percent (3%) within any business or residential district without blocking the wheels of the vehicle by turning them against the curb, or by other means. (Prior code § 3410.94)

10.22.080 Parking vehicles for sale.

No person shall park a vehicle with a sign or other writing indicating that the vehicle is for sale at any of the following through highways or service roads which connects directly with such through highway in the City:

A. Spring Street service road between Palo Verde Avenue and Studebaker Road;

B. Willow Street service road at Palo Verde Avenue;

C. Second Street service road between The Toledo and Naples Plaza;

D. Long Beach Boulevard between Ocean Boulevard and Anaheim Street;

E. Bellflower Boulevard between Colorado Street and Stearns Avenue, and between Twenty-Seventh and Twenty-Ninth Streets;

F. Studebaker Road between Atherton Street and Wardlow Road;

G. Spring Street between Atlantic Avenue and Studebaker Road;

H. Willow Street between Woodruff Avenue and Studebaker Road;

I. Seventh Street between Alamitos Avenue and Redondo Avenue;

J. Redondo Avenue between Ocean Boulevard and Anaheim Street;

K. Atlantic Avenue between Ocean Boulevard and Tenth Street;

L. Atlantic Avenue between Wardlow Road and Market Street;

M. Ocean Boulevard between Junipero Avenue and Fifty-Fourth Place;

N. Broadway Street between Junipero Avenue and Redondo Avenue;

O. Magnolia Avenue between Ocean Boulevard and Anaheim Street;

P. Pacific Avenue between Ocean Boulevard and Seventh Street;

Q. Ximeno Avenue between Ocean Boulevard and Tenth Street;

R. Cherry Avenue between Ocean Boulevard and Tenth Street;

S. Obispo Avenue between Seventh Street and Anaheim Street;

T. Anaheim Street between Termino Avenue and the I-710;

U. Spring Street between Knoxville Avenue and Studebaker Road;

V. San Antonio Drive between Orange Avenue and Atlantic Avenue;

W. Cherry Avenue between Market Street and Artesia Boulevard;

X. Cedar Avenue between Twelfth Street and Fourteenth Street;

Y. Alamitos Avenue between Ocean Boulevard and Seventh Street;

Z. Los Coyotes Diagonal between Woodruff and Gondar Avenue and on Woodruff Avenue between Los Coyotes Diagonal and Senasac Avenue;

AA. Seventh Street between Redondo Avenue and Park Avenue, Second Street between Livingston Drive and Ximeno Avenue, Bellflower Boulevard between Conant Street and Spring Street, including the service roads parallel thereto, and Del Amo Boulevard between Clark Avenue and Woodruff Avenue;

BB. Bayshore Avenue between Appian Way and Second Street, on Second Street between Bayshore Avenue and Naples Plaza and on Colorado Street between Nieto Avenue and Bellflower Boulevard;

CC. East side of Downey Avenue in the 5800, 5900 and 6000 blocks and the east side of Atlantic Avenue between Sixty-Eighth Street and Seventieth Street;

DD. Livingston Drive between Quincy Avenue and Prospect Avenue;

EE. Lois Lane between Bennett Avenue and Quincy Avenue;

FF. Second Street from Sorrento Drive to Naples Plaza;

GG. Naples Plaza from Second Street to The Toledo;

HH. 25th Way between De Forest Avenue and Golden Avenue; 26th Way between De Forest Avenue and Golden Avenue; and Golden Avenue between 27th Street and 25th;

II. Both sides of Artesia Boulevard between Atlantic Avenue and Orange Avenue; between Orange Avenue and Cherry Avenue; and between Cherry Avenue and Paramount Boulevard.

The terms "park" and "through highway", as used in this Section, have the respective meanings set forth in Sections 463 and 600 of the California Vehicle Code. (ORD-10-0010, § 1, 2010; ORD-10-0009, § 1, 2010; ORD-07-0060 § 1, 2007; ORD-07-0035 § 1, 2007; ORD-07-0008 § 1, 2007; ORD-06-0060 § 1, 2006; ORD-06-0007 § 1, 2006; Ord. C-7936 § 1, 2004; Ord. C-7921 § 1, 2004; Ord. C-7915 § 1, 2004; Ord. C-7857 §§ 1, 2, 2003; Ord. C-7800 § 1, 2002: Ord. C-5592 § 1, 1980; prior code § 3410.95)

10.22.090 Mobile vendor parking prohibited area.

No driver or operator of any mobile vending vehicle shall stop, stand or park, for the purpose of offering any food or goods for sale, in any public street or place within the parking impacted area. (ORD-09-0021, § 20, 2009; Prior code § 3410.96)

10.22.100 Parking adjacent to commercial gutters or depressed curbs.

No operator shall stop, park or leave standing any vehicle at any time and at any point in a roadway adjacent to a commercial gutter or depressed curb where such commercial gutter or depressed curb has been installed for the purpose of providing access between the roadway and property immediately adjacent to the street right-of-way, which area is used for the parking, loading, unloading or the maneuvering of vehicles. (Prior code § 3410.97)

10.22.110 Fire lanes.

No person shall park a vehicle in any fire lane designated by signs or markings or park or place any object, obstruction or vehicle in any establishment exitway, driveway, or alleyway between buildings that would hamper the ingress of fire equipment in case of fire in or about any church, assembly hall, lodge hall, school, hotel, apartment building, theater, motion picture theater, stadium, tent or other public assemblage. When a vehicle is parked in such designated fire lane or when, in the opinion of the Fire Chief, any driveway, gateway or alleyway between buildings is obstructed by objects, materials or vehicles, the same shall be immediately removed upon order of the Fire Chief, and when such obstruction is a vehicle, it may be impounded or removed as provided by law. (Ord. C-5436 § 2, 1978; Ord. C-5398 § 15, 1978; prior code § 3410.104)

10.22.120 Temporary parking restrictions.

A. Any other limitation on, or regulation concerning, parking contained in this Title to the contrary notwithstanding, no operator of any vehicle shall park or stand the same on any portion of any street, during the period commencing with the time indicated on signs containing the words "NO PARKING" which signs have been placed on such portion pursuant to the provisions of this Section, and ending with the authorized removal of such signs. The Chief of Police and Traffic Engineer, or their designees, are authorized and directed to place and erect temporarily, or cause to be so placed and erected, such signs on any such portion of any street when, and for so long as, the use of such portion is necessary for repair, construction, the installation of underground utilities, or where the use of the street, or any portion thereof, has lawfully been authorized for a purpose other than the normal flow of traffic, or for the movement of equipment, articles or structures of unusual size. Such signs shall not be placed, however, unless the parking of a vehicle on such portion would prohibit or interfere with such use or movement. Any vehicle parking in violation of this Section may be removed, as provided in Subsection 10.22.010.C, if such signs have been erected or placed at such portion of such street at least twenty-four (24) hours prior to such removal.

B. Such signs shall be posted at the beginning and end of such portion of such street where parking is to be restricted and every forty feet (40') therein. Such signs shall contain, at a minimum, the following information: The date(s) and time(s) parking will be restricted in the area, the City

department authorizing the parking restrictions, the name and phone number of the individual to contact with questions or concerns, the internet address, if applicable, of the City department or company performing the work or using the portion of the street where parking is restricted, and a description of the project or other use for which parking is restricted. Such signs shall be affixed to sign poles, saw horses, traffic control barrels, telephone poles, or light poles using tape, twine or rope. Such signs shall not be affixed to any of the foregoing objects with nails and shall not be affixed to trees. Such signs shall be erected or placed as indicated herein no later than twenty-four (24) hours prior to the time parking will first be restricted on such street.

C. The provisions of this Section prohibiting or restricting the parking of vehicles shall be inapplicable to any portion of a street constituting a portion of a State highway six (6) months after receipt by the Council of written notice from the Department of Public Works of the State of the withdrawal by the department of its approval or such prohibition or restriction as to any such portion of a State highway. (ORD-08-0011 § 1, 2008; prior code § 3410.109)

10.22.130 Seventy-two hour parking limit.

A. No operator of any vehicle shall leave said vehicle standing, and no registered owner of such vehicle shall permit or allow said vehicle to remain standing, upon any street or alley in the City for a period longer than seventy-two (72) hours from the time the vehicle is posted as set forth in this Section; provided, however, that this action shall not authorize the parking or standing of vehicles upon any street or alley in violation of applicable parking limits specified by other provisions of this Title.

B. Whenever any Police Officer determines by tire marking or otherwise that any vehicle has been standing in one (1) position on any street or alley for a period longer than twelve (12) hours, he shall securely attach a notice upon such vehicle setting forth in such notice a reference to this Section, the location of the vehicle at the time, the date of the notice, and the approximate hour of posting. The notice shall be attached to the vehicle, in such conspicuous place upon the vehicle as to be easily observed by the person in charge of the vehicle upon his return thereto.

C. For the purpose of this Section, a vehicle shall be deemed to have been left standing when such vehicle has not been moved more than one (1) block under its own power from its original stopped position.

D. Any vehicle parked in violation of this Section may be removed from the street by any Police Officer in accordance with Section 22652 of the California Vehicle Code. (Ord. C-5398 § 9, 1978; Ord. 5317 § 1, 1977; prior code § 3410.110)

10.22.140 Parking prohibited at certain times for street sweeping.

A. Any other limitation on, or regulation concerning parking contained in this Title to the contrary notwithstanding, no operator of any vehicle shall park or stand the same on any street or portion thereof during the hours and on the day or days of the month indicated on signs containing the words "NO PARKING", which signs have been placed on such street or portion thereof pursuant to the provisions of this Section. The City Manager is authorized to place and erect, or cause to be so placed and erected, the aforesaid signs on any street or portion thereof on which it is necessary to prohibit parking in order to permit City equipment to sweep the street or portion thereof, and to designate on the signs the hours during which, and day or days of the month on which, parking is so prohibited. In the event temporary signs are employed to prohibit parking on any street or portion thereof pursuant to the foregoing, no vehicle parked in violation of the directions set forth on the temporary signs shall be removed, pursuant to the provisions of Subsection C. of Section 10.22.010, unless such signs have been erected or placed on the street or portion thereof at least twenty-four (24) hours prior to such removal.

B. The provisions of this Section prohibiting the parking of vehicles shall be inapplicable to any

portion of a street constituting a portion of a State highway six (6) months after receipt by the Council of written notice from the Department of Public Works of the State of the withdrawal by the department of its approval of such prohibition as to any such portion of a State highway. (Prior code § 3410.112)

10.22.150 Repairing vehicle on-streets.

It is unlawful for any person to construct or reconstruct or cause to be constructed or reconstructed, repair or cause to be repaired, to grease or cause to be greased any vehicle or any part thereof upon any street; provided, however, that temporary, minor repairs in case of an emergency may be made upon any street to enable the vehicle to be moved to a proper place for mechanical work. (Prior code § 3410.113)

10.22.160 Parking on private property.

No person shall park a vehicle on private property if there is displayed in plain view a sign prohibiting public parking. The sign shall conform to the following:

A. The sign structure shall not be less than twenty-four inches (24") by seventeen inches (17") and shall be placed on the private property at each driveway access or curb cut allowing vehicular access to the property, within five feet (5') from the public right-of-way line. If there are no curbs or access barriers, signs shall be posted not less than one (1) sign per each fifty feet (50') of the frontage.

B. The notice shall clearly display the following:

1. In not less than two and three-eighth-inch (2⅜) high letters on contrasting background the words "NO PUBLIC PARKING";

2. In not less than one and one-eighth-inch (1⅛) high letters on contrasting background "UNAUTHORIZED VEHICLES WILL BE TOWED AWAY AT VEHICLE OWNER'S EXPENSE";

3. If unauthorized parking is not prohibited on a twenty-four (24) hour continuous basis, there shall also be posted in not less than one and one-eighth-inch-high letters the days of the week and hours of the day during which public parking is prohibited;

4. In not less than one and one-eighth-inch (1⅛) high letters, the Police Department telephone number and the section of the California Vehicle Code which authorizes the impounding of the vehicle.

C. The sign structure displaying the required notices shall be permanently installed with the bottom of the sign not less than four feet (4') above ground level and shall be continuously maintained on the property for not fewer than seventy-two (72) hours before the towing or removal of vehicles.

Pedestrian safety should be taken into consideration when locating freestanding signs. A violation of this Section shall be deemed an infraction. (Ord. C-6135 § 3, 1985; Ord. C-6099 § 6, 1984)

10.22.180 Parking of vehicles near intersections.

No person shall stop, stand or park a vehicle which is six feet (6') or more in height, including any load thereon, within one hundred feet (100') of an intersection on-streets which have been so posted with appropriate signs by the City Traffic Engineer. (Ord. C-6246 § 4, 1986)

10.22.182 Parking regulations within public housing projects.

Pursuant to California Vehicle Code Section 21111, the following parking regulations shall apply within the boundaries of any housing project owned or operated by a public Housing Authority:

A. Permit required. No person shall stop, park or leave standing any vehicle whether attended or unattended except when necessary to avoid conflict with other traffic, or in compliance with the directions of a peace officer, in any area within a public housing project which is specifically designated and posted as a restricted parking lot, unless such vehicle clearly displays an authorized and valid parking permit duly issued by the Housing Authority.

B. Designated spaces. No person shall stop, park or leave standing any vehicle whether attended or unattended except when necessary to avoid conflict with other traffic, or in compliance with the directions of a peace officer, in any area within a public housing project which is specifically designated as a parking lot, with designated parking spaces marked for such use unless such vehicle is parked clearly within a designated space so provided.

C. No repair. It is unlawful for any person to construct or reconstruct, or cause to be constructed or reconstructed, repair or cause to be repaired, to grease or cause to be greased any vehicle or any part thereof upon any street, or in any designated parking lot or area within a public housing project; provided, however, that temporary, minor repairs in case of an emergency may be made upon any street or parking lot area to enable the vehicle to be moved to a proper place for mechanical work.

D. Signs. The Housing Authority shall erect or place appropriate signs giving notice of the regulations imposed under this Section, and a copy of these regulations shall be kept at an administrative office within the housing project and made available for examination by interested persons.

E. Towing. Any vehicle parked in violation of the provisions of this Section may be towed away at the owner's expense pursuant to California Vehicle Code Section 22658 and Section 10.22.160 of this Code. (Ord. C-6663 § 1, 1989)

10.22.184 Pilot program establishing left curb parking in designated areas.

A. Notwithstanding any other provisions of this Code, and pursuant to Section 22502(f) of the California Vehicle Code, vehicles may park on the left-hand side of the roadway parallel to and within 18 inches (18") of the left-hand curb on two-way local residential streets that dead-end with no cul-de-sac or other designated area in which to turn around.

B. The area covered by this ordinance shall be limited to the streets perpendicular to Ocean Boulevard beginning with Balboa Place and ending at 72nd Place, but shall not include 62nd Place.

C. This ordinance shall not apply until signs or markings giving notice have been placed near the designated roadways.

D. This pilot program shall terminate three (3) years from the date of enactment of this ordinance unless otherwise authorized by the California Vehicle Code.

E. The City Traffic Engineer may, from time to time, promulgate rules and regulations, consistent with the purposes and provisions of this Section 10.22.184, to facilitate implementation of the Section. (ORD-15-0028, § 1, 2015)

CHAPTER 10.24
PARKING—RESTRICTIONS*

10.24.005 Definitions.

The following definitions shall apply to this Chapter:

A. "City Entrance Streets" means all streets crossing City boundaries entering the City of Long Beach and all freeway exit ramps within the City.

B. "Oversized Vehicle" means a vehicle which exceeds eighty-five inches (85") high or eighty inches (80") wide or twenty-two feet (22') long on a residential street or eighty-five inches (85") high or twenty-two feet (22') long, as determined by Department of Motor Vehicles records, exclusive of projecting lights or devices allowed by Sections 35109 or 35110 of the California Vehicle Code, as may be amended, on a nonresidential street. A boat, equipment or other object on or attached to a trailer shall be measured together with the trailer.

C. "Nonresidential street" means a street or portion thereof on which the majority of traffic is nonresidential, and which is adjacent to property on which the majority of uses are commercial, industrial or institutional.

D. "Residential street" means a street or portion thereof adjacent to property on which the majority of uses are residential in nature.

***State law reference**—Provisions on parking and stopping, Veh. C. § 22500 et seq.

E. "Permitted commercial loading period" means the time allowed for the actual loading or unloading of goods. The permitted commercial loading period shall be twenty (20) minutes, or such other time period as posted by the City Traffic Engineer. (ORD-17-0012 § 1, 2017; ORD-05-0025 § 5, 2005)

10.24.010 Angle parking.

A. When the City Council authorizes angle parking at a given location, the City Traffic Engineer shall mark or sign such location indicating the angle at which vehicles shall be parked.

B. When signs or markings are in place indicating angle parking, as provided in this Section, no person shall park or stand a vehicle other than at the angle to the curb or edge of the roadway indicated by such signs or markings.

C. No vehicle which exceeds twenty feet (20') in length is permitted to occupy such angle parking.

D. The City Traffic Engineer is authorized to post signs prohibiting the use of angle parking spaces by motorcycles when he or she determines that the restriction will result in more efficient use of on-street parking and that motorcycle only parking is located within a reasonable distance from the restricted parking space. (Ord. C-7869 § 1, 2003; Ord. C-7750 § 6, 2001; prior code § 3410.90)

10.24.030 Stopping prohibited where posted—Compliance required.

No person shall stop any vehicle for any purpose at any location where a sign is posted prohibiting such stopping. If stopping is prohibited during stated hours or days, no person shall stop at that location during such stated hours and days. For purposes of this Chapter, a vehicle shall be deemed stopped for a period of up to and including five (5) minutes, after which such vehicle shall be deemed parked and shall be subject to Section 10.24.050 of this Chapter. (ORD-07-0029 § 1, 2007; Ord. C-7801 § 1, 2002; Ord. C-7750 § 7, 2001; Ord. C-5398 § 7, 1978; prior code § 3410.106)

10.24.050 Parking prohibited where posted—Compliance required.

Except where parking by permit pursuant to Chapter 10.32 of this Code is expressly authorized, no person shall park any vehicle for any purpose at any location where a sign is posted prohibiting such parking. If parking is prohibited during stated hours or days, no person shall park at that location during such stated hours and days. (ORD-07-0029 § 2, 2007)

10.24.055 School street parking prohibited—Compliance required.

The City Traffic Engineer is hereby authorized, subject to the provisions and limitations of this Title, to place, when the need has been established by a Traffic Engineering study, applicable parking restriction signs at applicable times of the day within five hundred feet (500') of a school as a means to facilitate traffic circulation and increase safety at school sites. (Ord. C-7366 § 2, 1995)

10.24.060 Exclusive Parking for Mobile Food Facilities on Public Rights of Way.

Parking spaces exclusively for Mobile Food Facilities (MFFs) may be designated on City rights of way.

Notwithstanding any other provisions of this Code, and pursuant to Section 22455(b) of the California Vehicle Code, the City Traffic Engineer may place and maintain or cause to be placed and maintained on each of the streets, or portions of streets, appropriate signs notifying the public that parking is restricted to MFFs during posting hours. (ORD-26-0011 § 6, 2026)

10.24.075 Parking of unattached trailers prohibited.

A. No person shall park any unattached trailer at any location where a sign is posted pursuant to authorization of the City Traffic Engineer.

B. Notwithstanding Subsection 10.24.075.A, the City Traffic Engineer is hereby authorized to restrict the parking of unattached trailers by post-

ing signs, when the need has been established by evidence satisfactory to the City Traffic Engineer in the following circumstances:

1. Within the parking impacted area;

2. Business districts, as that term is defined in Section 235 of the California Vehicle Code;

3. Frontage roads of arterial streets;

4. Residential streets of less than thirty-six feet (36') in width;

5. Along any curb where the parking of unattached trailers may pose a safety risk to traffic, cyclists or pedestrians;

6. Along any street in which a substantial number of adjacent businesses or occupants support the installation of such restriction, upon receipt of a written request from a Council district and a determination by the City Traffic Engineer that there is either majority support for or lack of sufficient opposition to the proposed restrictions. The City Traffic Engineer's determination shall be based on responses from occupants of properties with front curbs proposed to be affected by the action received after notice of the proposed restrictions. (ORD-09-0021 § 21, 2009; Ord. C-7750 § 8, 2001: Ord. C-7698 § 2, 2000; Ord. C-7569 § 1, 1998; Ord. C-7407 § 3, 1996; Ord. C-7318 § 4, 1995; Ord. C-7208 § 1, 1994; Ord. C-7203 § 1, 1994; Ord. C-6982 § 4, 1992; Ord. C-6821 §§ 12, 15, 1990; Ord. C-6802 § 3, 1990; Ord. C-6797 § 5, 1990; Ord. C-6728 § 1, 1990; Ord. C-6711 § 2, 1990; Ord. C-6629 § 1, 1989; Ord. C-6554 § 1, 1989)

10.24.076 Reserved.

Editor's note—ORD-17-0012 § 7, adopted Aug. 15, 2017, repealed § 10.24.076 entitled "Continuation of existing oversized vehicle regulation," which derived from: ORD-05-0025 § 1, 2005; Ord. C-7949 § 1, 2004; Ord. C-7888 § 1, 2003; Ord. C-7878 § 1, 2003; Ord. C-7864 § 1, 2003; Ord. C-7858 § 1, 2003; Ord. C-7844 § 1, 2003; Ord. C-7841 § 1, 2003; Ord. C-7825 § 1, 2002; Ord. C-7804 § 1, 2002; Ord. C-7798 § 1, 2002; Ord. C-7787 § 1, 2002; Ord. C-7761 § 1, 2001; Ord. C-7746 § 3, 2001; Ord. C-7742 § 1, 2001; Ord. C-7730 § 1, 2001; Ord. C-7718 § 3, 2000; Ord. C-7700 § 2, 2000; Ord. C-7698 § 3, 2000; Ord. C-7689 § 2, 2000; Ord. C-7644 § 1, 1999; Ord. C-7623 § 1, 1999; Ord. C-7610 § 1, 1999; Ord. C-7599 § 1, 1999; Ord. C-7586 § 1, 1999; Ord. C-7525 § 3, 1998; and Ord. C-7464 § 1, 1997.

10.24.077 Posting of restrictions.

The City Traffic Engineer shall place and maintain or cause to be placed and maintained, on City Entrance Streets appropriate signs notifying the public of Oversized Vehicle residential parking restrictions. (ORD-17-0012 § 2, 2017; ORD-05-0025 § 2, 2005; Ord. C-7464 § 4, 1997)

10.24.078 Parking of Oversized Vehicles prohibited.

A. No person who owns, has custody, or control of an Oversized Vehicle as defined in Section 10.24.005, shall cause it to be parked in a residential area, as defined in Section 10.24.005, on any public street.

B. Subsection A of this Section shall not apply to an Oversized Vehicle, so long as it is parked in a manner which otherwise complies with applicable State law and the City of Long Beach Municipal Code, when a valid permit is displayed on the inside of the lower left corner of the windshield of an Oversized Vehicle so as to be visible from the street. The permit shall state the address of the resident and the permit shall only be valid within the same block as the resident's address, on either side of the street. A resident may obtain an Oversized Vehicle parking permit for a non-resident visitor temporarily residing with the resident under the same terms as set forth herein. Said permit may be obtained and displayed in accordance with Section 10.24.080 of this Chapter.

C. Subsection A of this Section shall not apply to a commercial vehicle which is engaged in the active loading or unloading of goods for a period of time which does not exceed the Permitted Commercial Loading Period as defined in Section 10.24.005. (ORD-17-0012 § 3, 2017; ORD-05-0025 § 3, 2005)

10.24.079 Designation and termination of Oversized Vehicle parking restrictions in nonresidential areas.

In nonresidential areas, installation or removal of Oversized Vehicle parking restrictions may be initiated in one (1) of the following ways:

A. Safety/traffic hazards. The City Traffic Engineer may install or remove Oversized Vehicle

parking restrictions from one (1) or both sides of any street or block when the need has been established by evidence satisfactory to the City Traffic Engineer based on factors including, but not limited to, street size and width, traffic patterns and volume, traffic on nearby streets or street segments, location of the street in the parking impacted area, neighborhood characteristics and Citywide traffic plans; or

B. Petition. The City Traffic Engineer is authorized to install or remove Oversized Vehicle parking restrictions from one (1) or both sides of any street or block upon receipt of a petition containing the signatures of occupants of two-thirds (2/3) of the street addresses of properties with front curbs proposed to be affected by the action. The City Traffic Engineer shall make available for this purpose a petition form containing the street addresses of said properties. In the case of nonresidential properties, the petition must contain the signatures of owners or owners' agents for at least two-thirds (2/3) of the linear street frontage described on the petition, irrespective of the property's legal address; or

C. Council district office. As an alternative to the petition process, the City Traffic Engineer is authorized to install or remove Oversized Vehicle parking restrictions from one (1) or both sides of any street or block upon receipt of a written request from a Council district office and a determination by the City Traffic Engineer that there is either majority support for or lack of sufficient opposition to the proposed restrictions. The City Traffic Engineer's determination shall be based on responses from occupants of properties with front curbs proposed to be affected by the action received after notice of the proposed restrictions. (ORD-17-0012 § 4, 2017; ORD-09-0021 § 22, 2009; ORD-05-0025 § 4, 2005; Ord. C-7464 § 2, 1997)

10.24.080 Oversized Vehicle seventy-two (72) hour parking permit for residential streets.

A. The City Traffic Engineer in the Public Works department, or such other department as the City Manager shall designate, is authorized to issue Oversized Vehicle parking permits for campers, trailers, boats on trailers and recreational vehicles for the purpose of such activities as loading, unloading or performing maintenance on such vehicles for a period of not more than seventy-two (72) hours. Such activities must be conducted in compliance with all other laws and regulations. No more than twenty (20) permits shall be issued to any one (1) eligible resident or to any one (1) eligible vehicle within one (1) calendar year and a twenty-four (24) hour period must elapse between permits.

B. Oversized Vehicle parking permits shall be issued for motor vehicles upon application of the registered owner or such other person who can provide evidence of residency at a location at which on-street parking of Oversized Vehicles is prohibited and can demonstrate exclusive use and control of the vehicle for which application is made.

C. Each Oversized Vehicle parking permit shall be issued for a period not to exceed seventy-two (72) hours in duration. Each application or reapplication for Oversized Vehicle parking permits shall be in writing and shall contain sufficient information to satisfy the administering department as to the identity and residential address of the applicant, the applicant's registered ownership or exclusive use and control of the vehicle for which application is made, the license number of the vehicle, and any other information that the administering department deems necessary for the proper processing of the application.

D. The City Traffic Engineer or his designee may place further restrictions on any permit issued as deemed necessary to protect the public health and safety. Such restrictions shall appear on the face of the permit which shall be displayed on the inside of the windshield of the vehicle for which the permit is issued so as to be readily visible to a person approaching the vehicle from the front thereof.

E. Applications for issuance of seventy-two (72) hour permits shall be accompanied by such fee therefor as may be established from time to time by resolution of the City Council.

F. Exceptions. The City Traffic Engineer may issue Oversized Vehicle permits when an application made in writing and containing a statement of reasons, establishes good cause in the following circumstances:

1. A time extension for not more than forty-eight (48) additional consecutive hours;

2. Additional Oversized Vehicle parking permit(s) after the twenty (20) annual permit maximum has been reached;

3. A temporary permit to park an Oversized Vehicle otherwise prohibited by Section 10.24.078 if there is a finding that the Oversized Vehicle is used on a daily basis and on-premises parking is not reasonably available. A permit issued based on this finding shall not be valid for longer than six (6) months.

For applications under Subsections F.1 and F.2, applicants will be required to show proof of a current, valid rental or other agreement for storage of the applicant's Oversized Vehicle. (ORD-17-0012 § 5, 2017; ORD-05-0025 § 6, 2005; Ord. C-7464 § 3, 1997)

10.24.081 Oversized Vehicle Disability Parking Permit.

A. Permit issuance. The City Traffic Engineer is authorized to issue permits for disabled persons to park Oversized Vehicles which are needed as a result of their disability.

B. Eligibility and duration. To be eligible for an Oversized Vehicle Disability Parking Permit, a person must:

1. Eligibility.

a. Own or lawfully possess an Oversized Vehicle, which is used as their primary vehicle.

b. Be a permanent resident of the City of Long Beach.

c. Possess a valid, distinguishing disabled placard or license plate properly issued pursuant to the California Vehicle Code.

d. Demonstrate that by reason of the disability which warranted issuance of their California distinguishing placard or license plate, the Oversized Vehicle is specially equipped and necessary to accommodate the disability of the person seeking the permit so that a reasonable modification to the City's on-street parking regulations is warranted under State and federal law. If an Oversized Vehicle Disability Parking Permit applicant or permit holder fails or refuses to provide the information required by these rules and regulations, the City Traffic Engineer may, but need not, obtain from the Department of Motor Vehicles the information allowed by Vehicle Code section 22511.58(a). When he or she deems it necessary or advisable, the City Traffic Engineer may convene a review panel for the purposes enumerated in Vehicle Code section 22511.58(b).

2. Duration.

a. The Oversized Vehicle Disability Parking Permit will be valid for one (1) year, and is renewable. A single permit may be issued for each location at which the applicant resides, and at each facility at which the applicant receives services.

b. The Oversized Vehicle Disability Parking Permit provides an exception to the Oversized Vehicle parking prohibition only. All other parking restrictions apply, including but not limited to the seventy-two (72) hour parking restriction and posted street cleaning closures.

C. Application Process. To obtain an Oversized Vehicle Disability Parking Permit, a person must:

1. Be eligible for an Oversized Vehicle Disability Parking Permit under Subsection 10.24.081.B.

2. Provide complete and correct information on the application for an Oversized Vehicle Disability Parking Permit.

3. Provide current California Vehicle Registration for the vehicle for which an Oversized Vehicle Disability Parking Permit is requested. If the vehicle is not owned by the applicant, sufficient evidence must be presented to prove that the applicant has the legal right to use the vehicle.

4. Provide a copy of a valid disabled parking placard properly issued pursuant to the California Vehicle Code OR provide current California Vehicle Registration for the vehicle for which the permit is requested that indicates that the vehicle has valid and properly issued disabled license plate.

D. Application Review and Permit Issuance. Upon receipt of a complete application for an Oversized Vehicle Disability Parking Permit, and prior to issuing any such permit, the City Traffic Engineer shall:

1. Review the application and all supporting materials for completeness and compliance with Section 10.24.081.

2. Inspect the Oversized Vehicle to determine whether it is specially equipped and necessary to accommodate the applicant's disability.

3. Review the requested parking locations to verify that they are a legal dwelling unit where the applicant resides, or a facility at which the applicant receives services, or the applicant's place of employment. A single permit may be approved for multiple locations or, as appropriate, Citywide use subject to the approved parking locations.

E. Specific Oversized Vehicle.

1. An Oversized Vehicle Disability Parking Permit may only be used upon the vehicle that was identified in the application for the permit and inspected by the City Traffic Engineer or his or her designee. If the vehicle is not owned by the applicant, sufficient evidence must be presented to prove that the applicant has the legal right to use the vehicle. At such time as the vehicle is no longer used by the applicant, the permit holder shall return the permit to the City Traffic Engineer. To qualify for an Oversized Vehicle Disability Parking Permit, the size of the applicant's vehicle must be necessary to accommodate the required on-street parking modification.

2. Approved Parking Locations.

a. An Oversized Vehicle Disability Parking Permit is only valid at the locations approved by the City upon permit issuance.

b. An Oversized Vehicle Disability Parking Permit may only be approved for use at:

(i) the legal dwelling unit at which the applicant resides;

(ii) any location or facility at which the applicant receives services, or

(iii) the applicant's place of employment.

c. The permitted parking location cannot create or exacerbate a traffic safety hazard. An oversized vehicle may not be parked at any location that leaves less than ten feet (10') in the adjacent travel lane, or within forty feet (40') of any driveway or intersection. Doing so could result in revocation of the permit, and possible citation. Some streets may not be able to accommodate oversized vehicles due to street width or driveway frequency.

F. Grounds for Refusal to Issue or Revocation of an Oversized Vehicle Disability Parking Permit. Any of the following are grounds for refusal to issue or revocation of an Oversized Vehicle Disability Parking Permit:

1. Lawful possession of vehicle. The applicant fails to demonstrate that he or she owns or lawfully possesses the Oversized Vehicle for which he or she seeks a permit.

2. Incomplete application. The applicant fails to provide complete and correct information as required by the City.

3. Oversized Vehicle not necessary to accommodate disability. The oversized nature of the applicant's vehicle is not necessary to accommodate a disability, or the oversized nature of the vehicle is not necessary to accommodate a modification that is necessary to for a disability.

4. Dangerous Traffic Safety Condition. The permit holder uses the permit to park in a manner that creates or exacerbates a dangerous traffic safety condition.

5. Improper use. The permit holder uses the permit on a vehicle not approved by the City and designated on the permit, or the permit holder uses the permit at a location not approved by the City and designated on the permit, or the permit holder gives the permit to an ineligible vehicle or person for use.

6. Failure to comply with all laws, rules, and regulations. The permit holder fails to comply with any City law, rule, or regulation pertaining to Oversized Vehicle permit parking.

G. Supplemental Disability Determination Consultation.

1. An unsuccessful Oversized Vehicle Disability Parking Permit applicant may seek consultation with the City's Disability Coordinator. The Disability Coordinator may also consult with the

City Traffic Engineer to assure reasonable modifications to any City program, including on-street parking, when warranted to provide equal access for a person with disabilities. (ORD-17-0012 § 6, 2017)

10.24.090 Limited time parking.

A. At any location where a sign is posted pursuant to authorization of the City Traffic Engineer limiting the duration of parking, no person shall park any vehicle for a time period which exceeds the stated time limit.

B. Notwithstanding the foregoing, the City Traffic Engineer is authorized to install signs restricting the duration of parking in the parking impacted area when such parking restrictions are reasonably intended to facilitate business activity, to improve access to public facilities or enhance resident access to parking in neighborhoods. In deciding to install or remove time limited parking restrictions, the City Traffic Engineer shall consider the comments of businesses and residents affected by the proposed change. This Subsection does not alter in any way the limitations stated in Section 10.22.030 of this Code.

C. For purposes of this Section, a vehicle shall be deemed to have been left standing when such vehicle has not been moved more than one (1) block under its own power from its original stopped position. (ORD-09-0021 § 23, 2009; Ord. C-7750 § 9, 2001; Ord. C-5398 § 10, 1978; prior code § 3410.111)

10.24.130 Parking space markings.

A. The City Traffic Engineer is authorized to install and maintain parking space markings to indicate parking spaces adjacent to curbing where authorized parking is permitted.

B. When such parking space markings are placed in the highway, subject to other and more restrictive limitations, no vehicle shall be stopped, left standing or parked, other than within a single space, unless the size or shape of the vehicle makes compliance impossible.

C. The City Traffic Engineer is authorized to post signs prohibiting the use of any marked parking space by motorcycles when he or she determines that the restriction will result in more efficient use of on-street parking and that motorcycle only parking is located within a reasonable distance from the restricted parking space.

D. The City Traffic Engineer is authorized to exercise reasonable discretion in the marking of

parking space sizes within the parking impacted area in order to maximize on-street parking availability.
(ORD-09-0021, § 32, 2009; Ord. C-7869 § 2, 2003; prior code § 3410.108)

10.24.140 Designated parking areas on certain streets.

A. The City Council finds and declares that the parking of vehicles on certain narrow streets in densely populated areas within the City creates a detrimental condition affecting the health, safety and welfare of the community by encroaching upon the traveled portions of said streets in such a manner as to impede and obstruct the free flow of traffic, thus requiring the parking restrictions as contained herein.

B. Notwithstanding Section 10.24.130, the City Traffic Engineer is authorized to designate and maintain parking areas or spaces and to post signs in such a manner along the curbings of streets located within the parking impacted area, to require vehicles to park entirely within said designated areas or spaces, so as not to encroach upon the traveled portion.
(ORD-09-0021, § 24, 2009; Ord. C-6564 § 4, 1989; Ord. C-6241 § 1, 1986)

10.24.150 Motorcycle only parking areas.

A. The City Traffic Engineer is authorized to post signs designating motorcycle only parking areas when he or she determines that the restriction will result in more efficient use of on-street parking.

B. No vehicle other than a motorcycle shall park in an area designated as a motorcycle only parking area.

C. No portion of a motorcycle parked in a motorcycle only parking area shall extend into any other parking space or into any area in which parking is prohibited. (Ord. C-7869 § 3, 2003)

CHAPTER 10.25 MOTOR VEHICLE ALARMS

10.25.010 Motor vehicle alarms—Violations—Penalties.

A. The City Council finds and declares that a significant problem exists in the City with motor vehicle alarms. Many alarms are activated by accident or carelessness and not as the result of any criminal activity. The noise from motor vehicle alarms is contrary to public health, safety and welfare of the community and is declared to be a public nuisance.

B. No person shall cause, allow, permit or suffer any alarm located in a motor vehicle registered in the name of or operated by such person to emit any continuous or intermittent audible sound in the City for a period of more than fifteen (15) minutes. The time shall be calculated based upon the emission of the first audible sound and ending fifteen (15) minutes thereafter notwithstanding any variation or delay in the emissions of audible sound.

C. Except as provided in Subsection 10.25.010.D, any person violating this Section shall be guilty of an infraction. Any person convicted of an infraction under this Section shall be punishable by a fine of not more than twenty-five dollars ($25.00).

D. Any person violating this Section who has been previously convicted of three (3) or more violations of this Section shall be guilty of a misdemeanor.

E. The Police Department, in order to abate the public nuisance created by a vehicle in violation of this Section, may take such steps as are reasonably necessary to enter the vehicle, disconnect the alarm, and remove the vehicle for safekeeping in the manner permitted by law. (Ord. C-6036 § 2, 1984)

CHAPTER 10.26 STOPPING WHILE LOADING OR UNLOADING*

10.26.010 Yellow, white or green curb markings.

The City Traffic Engineer is authorized, subject to the provisions and limitations of this Title, to place, and when the need has been established by Traffic Engineering study, shall place curb markings and/or appropriate signs to indicate parking regulations as enumerated in this Section and in

***State law reference**—Provisions authorizing local authorities to regulate the operation of vehicles for hire, Veh. C. § 21100.

Section 10.26.020. Where no curb exists, markings may be painted upon the most appropriate surface or signs may be placed instead of or in addition to such markings. When such markings and/or signs have been installed and are in place, it is unlawful for the operator of any vehicle to stop, stand or park such vehicle in violation of any such marking and/or sign.

A. Yellow indicates stopping only for the purpose of loading or unloading passengers or freight for a period of not in excess of two (2) minutes for passenger loading or unloading, nor twenty (20) minutes for freight loading or unloading. The words "LOADING ZONE" shall be stenciled on the yellow paint or appropriate signs may be posted. This restriction shall apply only between 7:00 a.m. and 6:00 p.m. on any day except Sundays and holidays.

B. White indicates stopping only for loading or unloading of passengers or depositing mail in an adjacent mailbox, or when stenciled "TAXICAB STAND", for the standing of taxicabs or automobiles for hire. No person shall use a white zone for a period in excess of two (2) minutes except that taxicabs or automobiles for hire at taxicab stands are exempted from this time limit.

C. Green indicates parking limited to a time from ten (10) to thirty (30) minutes, as determined by the City Traffic Engineer for a particular location or locations, between 9:00 a.m. and 6:00 p.m. of any day, except Sundays and holidays. A legend containing the applicable time limitation followed by the words "MIN. PARKING" shall be stenciled on the green, or appropriate signs may be posted.

D. Upon posting of appropriate signs, when the need has been established evidence satisfactory to the City Traffic Engineer, the City Traffic Engineer is authorized to create commercial and passenger loading zones for specified days and times to accommodate and balance the specialized demands of parking and loading needs of businesses and residents. (ORD-09-0021, § 25, 2009; Ord. C-5439 § 1, 1978; Ord. C-5398 § 5, 1978: Ord. C-5355 § 1, 1977; prior code § 3410.100)

10.26.020 Red curb markings.

When red curb markings have been installed and are in place, no operator shall stop or park any vehicle for any purpose at any time except that a bus may stop in a red zone marked or sign posted as a bus stop as provided in Section 10.26.040. Red curb markings may be used to supplement or in place of signs prohibiting stopping. (ORD-09-0021, § 26, 2009; Ord. C-5398 § 6, 1978; prior code § 3410.101)

10.26.030 Stopping in alley.

A. No person shall stop, stand or park a vehicle in any alley for any purpose other than the loading or unloading of persons or materials, except at locations where parking is permitted by the provisions of Subsection B of this Section.

B. Notwithstanding the foregoing, in the parking impacted area, the City Traffic Engineer, with the concurrence of the Chief of Police and the Fire Marshall, is authorized to permit parking in alleys or portions of alleys upon the posting of appropriate signs. (ORD-09-0021, § 27, 2009; Ord. C-5711 § 1, 1981; prior code § 3410.101)

10.26.040 Bus stop marking.

The City Traffic Engineer is authorized to establish bus stops and to designate curb space for the loading and unloading of passengers of a bus engaged as a common carrier in local transportation. Such bus stops shall be indicated by a sign, or by red curb markings. (ORD-09-0021, § 28, 2009; Ord. C-5691 § 2 (part), 1981; prior code § 3410.103)

10.26.050 Warning lights while obstructing street.

No person having charge of any building materials, excavation, house movers' materials or appliance, or any obstruction of the public streets of the City, shall allow the same to remain on any public street, alley or public place of the City at any time during the hours between darkness and dawn, without maintaining a lighted lantern at each end of the building material, excavation, house movers' materials, or obstruction. (Prior code § 3470)

CHAPTER 10.28 PARKING METERS*

10.28.010 Definitions.

As used in this Chapter:

"Alternate form of payment" means any lawful form of payment, including but not limited to, tokens, prepaid cards, debit cards, credit cards that a parking meter is equipped to accept as payment for occupying a parking space.

"Metered parking space" means a parking space within a parking meter zone or metered parking area or lot.

"Multi-space parking meter," also known as a pay station or pay and display machine, means a device which records paid parking time, or accepts payment and dispenses a proof of payment ticket for more than one (1) parking space. If not located immediately adjacent to the parking space it regulates, a multi-space parking meter will be marked or labeled to identify the spaces it regulates.

"Parking meter" means any device which, upon the deposit of payment, registers the time that a vehicle is parked in a metered parking space, or which generates proof of payment for parking in a metered parking space for a specified time period or for a specific number of minutes. "Parking meter" includes a multi-space parking meter.

"Proof of payment ticket" means a paper slip or ticket dispensed from a multi-space parking meter for the sole purpose of being displayed as proof of payment for the occupancy of a metered parking space. For the purposes of this Chapter, "proof of payment ticket" does not include a credit card receipt or debit card receipt.

"Single-space parking meter" means a device located adjacent to a metered parking space, which device records paid parking time or accepts payment for parking time for one (1) parking space.

"Veteran's license plate" means a currently valid vehicle license plate issued by the State of California to a person who is one (1) of the following: Medal of Honor recipient, Legion of Valor recipient, Pearl Harbor survivor, Purple Heart recipient or former prisoners of war. The term includes a license plate issued by another State indicating a similar status. (ORD-07-0003 § 1 (part), 2007)

10.28.020 Installation of metered parking spaces and parking meters.

A. Council may authorize the City Traffic Engineer to establish metered parking spaces within parking meter zones and parking areas or lots, each of which spaces shall be of sufficient size to permit the parking or standing of one (1) vehicle.

B. The City Traffic Engineer shall post signs, or place lines or marks on the curb, street or other area about or alongside of each parking meter to designate the parking space for which the meter is to be used.

C. To regulate parking and collect parking revenues, the City Traffic Engineer is further authorized to place a parking meter, as defined in this Chapter, which registers the time that a vehicle is parked in a metered parking space or which generates proof of payment for parking in a metered parking space for a specified time period or for a specific number of minutes.

D. Nothing in this Section is intended to limit the authority of the City Traffic Engineer to establish green restricted-time parking zones or yellow loading zones. (ORD-07-0003 § 1 (part), 2007)

10.28.030 Operation of parking meters.

A. A parking meter may accept United States currency in the form of coins or paper currency, or accept alternate forms of payment including, but not limited to, prepaid cards, debit cards or credit cards. If not located immediately adjacent to the parking space it regulates, it will be marked or labeled to identify the space for which it accepts payment. Parking meters will operate in one (1) of two (2) ways:

1. Measure, in minutes, the period of time during which the vehicle may park in a parking meter space without violating the provisions of this Chapter or any ordinance regulating parking upon the street or other area on which the parking meter is established. Such a parking meter shall be

---

***State law reference—**Provisions authorizing local authorities to establish parking meter zones, Veh. C. § 22508.

Note—Prior history: Prior code §§ 3420—3420.12; Ords. C-5309, C-5357, C-5530, C-6283, C-7920, ORD-06-0015 and ORD-06-0031.

constructed so that it will, upon the expiration of the period of time, commencing with the deposit and acceptance of payment, and ending with the expiration of the period of time that the parking or standing of a vehicle in the space is permitted, display a flag sign, alphanumeric display or other signal which will indicate that the permitted time for the parking of the vehicle, has expired.

2. Dispense a Proof of Payment Ticket. Such proof of payment ticket must be attached to the driver's side front window with the expiration time and date readily visible from outside the vehicle in order to be valid. (ORD-07-0003 § 1 (part), 2007)

10.28.040 Parking method.

Except as required elsewhere in this Code or by State law, any vehicle parked or standing in any metered parking space shall be parked or stand within the lines marked on the street or other area for such parking space as provided hereinafter, with the front end of the car facing the direction of traffic in the adjacent driving lane. No person shall park or stand any vehicle across any such line or mark or park the vehicle in such way that it will not be within the area so designated by the signs, lines or markings. (ORD-07-0003 § 1 (part), 2007)

10.28.050 Payment for metered parking space.

A. No person shall park, stand, or stop any vehicle in any metered parking space during a period for which a parking time limit is applicable to the space without making payment for the use of such space as posted. The provisions of this Section shall not be applicable on holidays as defined in Section 10.02.040 of this Code or during those hours when a parking time limitation is not imposed, nor shall it apply to a vehicle displaying a valid veteran's license plate.

B. For the purposes of this Chapter, payment is evidenced in one (1) of two (2) ways either: (1) the parking meter which regulates the metered parking space displays one (1) or more minutes of paid time; or (2) a proof of payment ticket is attached to the vehicle as specified in Subsection 10.28.090.C with the expiration time and date readily visible from outside the vehicle on the street side.

C. Where a single-space parking meter is installed, if the parking meter is inoperable for any reason, the time limits posted shall be enforced during the hours of operation for parking meters, as posted.

D. Where a multi-space parking meter is installed, if that multi-space parking meter is inoperable for any reason, the person seeking to purchase a proof of payment ticket must purchase proof of payment from the next closest multi-space parking meter. If there is no other operational multi-space meter within one (1) block in any direction without crossing a street, or no other operational multi-space meter within the same parking lot, the time limits posted shall be enforced during the hours of operation for parking meters, as posted. (ORD-18-0014 § 2, 2018; ORD-07-0003 § 1 (part), 2007)

10.28.060 Unlawful to occupy a metered parking space without paying for parking.

A. No person shall park a vehicle in any parking space without paying for parking, except during such time immediately after the original occupancy as is necessary as to deposit payment into a parking meter and if purchasing a proof of payment ticket at a multi-space parking meter, to return to the vehicle to display such ticket.

B. No person shall stop or park any vehicle in any parking meter space beyond the time permitted by this Chapter for the parking of vehicles in the block or other area in which the parking meter space is situated; provided, however, this Section shall not apply within the hours during which free parking is permitted in this Chapter nor shall it apply to a vehicle displaying a valid veteran's license plate.

C. Unless stated otherwise on the parking meter and the proof of parking ticket, nothing in this Section is intended to prevent a person who has purchased a proof of parking ticket from parking in more than one (1) location within the same parking meter zone, so long as the paid time, as evidenced on the proof of parking ticket, has not been exceeded. (ORD-07-0003 § 1 (part), 2007)

10.28.070 Unlawful to use or possess a proof of parking ticket purchased by another.

When a person has purchased a proof of payment ticket and has affixed that ticket to a vehicle, it is thereafter unlawful for any other person to remove that ticket, to be in possession of that ticket, or to display that ticket on another vehicle. (ORD-07-0003 § 1 (part), 2007)

10.28.075 Unlawful to extend time limits.

No person shall, by depositing additional payment in a parking meter, extend the time for stopping, parking or standing any vehicle beyond the time permitted by this Chapter for parking vehicles within a metered parking space when the vehicle has occupied that space for a consecutive number of minutes equal to or in excess of the legal time parking limit. (ORD-07-0003 § 1 (part), 2007)

10.28.080 Prohibited use of parking meter.

A. No person shall deposit in any parking meter any defaced or bent coin, or any slug, device or substitute for the required coin or coins or paper currency of the United States or acceptable alternate form of payment.

B. No person shall direct or insert any card, object, substance or device in, upon, or at a parking meter as a means to avoid, or in lieu of, making lawful payment for parking as required by this Chapter.

C. No person shall deface, injure, tamper with, open or wilfully break, destroy or impair the usefulness of any parking meter by any means. (ORD-07-0003 § 1 (part), 2007)

10.28.090 Evidence of payment.

A. Single-Space Meters. The parking or standing of any vehicle in a parking space, at which space the parking meter displays a sign, flag, alphanumeric display or signal indicating illegal or expired parking, during hours in which parking meters are operational, shall constitute a prima facie presumption that the vehicle has been parked or allowed to stand in such space for a period longer than permitted by this Chapter.

B. Multi-Space Meters. The parking or standing of any motor vehicle in a metered parking space regulated by a multi-space parking meter which vehicle does not display a proof of parking ticket attached vehicle as set forth in Subsection C of this Section, shall constitute a prima facie presumption that the vehicle has been parked or allowed to stand in such a space for a period longer than permitted by this Chapter.

C. Proof of payment shall be displayed as follows, with the expiration time and date readily visible from outside the vehicle:

1. For vehicles without side windows, attached to the dashboard of the vehicle adjacent to the vehicle identification number ("VIN");

2. For motorcycles, attached to the headlight and readily visible from the adjacent driving lane;

3. For all other vehicles, attached to the inside of the front side window of the vehicle on the side closest to the adjacent driving lane.

D. The provisions of this Section shall not apply to a vehicle displaying a currently valid veteran's license plate. (ORD-07-0003 § 1 (part), 2007)

10.28.100 Purpose of compensation.

The payment required to be made by depositing money or an alternate form of payment into a parking meter as provided in this Chapter are declared to be necessary to compensate the City for the expense incurred in furnishing facilities, equipment, supervision and regulation required by such parking, and is found to be a reasonable fee for the privilege, voluntarily exercised by owners, operators, managers or drivers of vehicles, of parking the vehicles within the parking spaces, in conformity with the provisions of this Chapter. (ORD-07-0003 § 1 (part), 2007)

10.28.110 Payment collection.

All payments made to or deposited in any parking meter shall be collected regularly by a person designated by the City Manager. (ORD-07-0003 § 1 (part), 2007)

10.28.120 Demonstration program—Multi-space meters.

As a demonstration program, multi-space parking meters shall be installed on Bay Street west of Pine Avenue and on Pine Avenue north of Bay Street for a three (3) month trial period, to expire July 30, 2006. After that date, parking meters in all parking meter zones may be either single-space meters or multi-space meters, as designated by the City Traffic Engineer. (ORD-07-0003 § 1 (part), 2007)

10.28.130 Parking meter zones established—Rates set by resolution.

A. The areas or streets described below are hereby established as parking meter zones:

Zone Number	Area/Street
1	Second Street between Livingston Drive and Bayshore Avenue and all streets intersecting Second Street within those limits from the alley north of, to the alley south of, Second Street, including those parking lots adjacent to the alleyways south of Second Street.
1A	Northwesterly side of Park Avenue, beginning one hundred fifteen feet (115') southerly of 2nd Street, within the Belmont Shore District.
2	Ocean Boulevard between Golden Avenue (Golden Shore) and Atlantic Avenue.
3	First Street, Broadway, Third Street, Fourth Street, Fifth Street, Sixth Street, and Seventh Street between Pacific Avenue and Long Beach Boulevard; Pacific Avenue between First Street and Seventh Street; and Pine Avenue, Locust Avenue, and Long Beach Boulevard between Ocean Boulevard and Seventh Street.
4	First Street, Broadway, Third Street, and Fourth Street between Long Beach Boulevard and Atlantic Avenue; Fifth Street, Sixth Street, and Seventh Street between Long Beach Boulevard and Elm Avenue; Elm Avenue between Ocean Boulevard and Sixth Street; and Linden Avenue between Ocean Boulevard and Broadway.
5	Broadway between Maine Avenue and Pacific Avenue; Third Street, Fourth Street, and Fifth Street between Cedar Avenue and Pacific Avenue; Magnolia Avenue (west side only) between Ocean Boulevard and Broadway; Chestnut Avenue between Broadway and Third Street; and Cedar Avenue between Broadway and Fifth Street.
6	Pacific Avenue and Locust Avenue between Seventh Street and Eighth Street; Pine Avenue between Seventh Street and Tenth Street; Long Beach Boulevard between Seventh Street and Fourteenth Street; Seventh Street between Long Beach Boulevard and Elm Avenue; and Eighth Street between Pacific Avenue and Locust Avenue.
7	(Reserved)
8	(Reserved)
9	(Reserved)
10	(Reserved)
11	(Reserved)
12	(Reserved)
13	(Reserved)
14	(Reserved)
15	(Reserved)
16	(Reserved)
17	(Reserved)
18	Pine Avenue between Seaside Way and Ocean Boulevard.
19	Pine Avenue between Seaside Way and its southerly terminus.
20	Shoreline Drive between Linden Avenue and Aquarium Way; the north side of Shoreline Drive from Chestnut Place to Cedar Avenue; the north side of Shoreline Drive from Aquarium Way to Pine Avenue; and the south side of Shoreline Drive from Pine Avenue to Shoreline Village Drive.
21	Aquarium Way between Shoreline Drive and Seaside Way.
22	Cedar Avenue between Shoreline Drive and Seaside Way.

Zone Number	Area/Street
23	Bay Street between Cedar Avenue and Pine Avenue.
24	The Paseo between Aquarium Way and Pine Avenue.
25	Seaside Way between Linden Avenue and Golden Shore.
26	(Reserved)
27	Palo Verde between Atherton Street and Anaheim Road.
28	Anaheim Road between Palo Verde Avenue and Iroquois Avenue.
29	Lew Davis Drive between Faculty Drive and Clark Avenue.
30	Carson Street between Faculty Drive and Clark Avenue.
31	Ocean Boulevard between Termino Avenue and Bennett Avenue.
32	Olympic Plaza between Termino Avenue and Bennett Avenue.
33	Ocean Boulevard between Bay Shore Avenue and Fifty-fifth Place.
34	4th Street from Hermosa Avenue to Temple Avenue, north and south sides, including side streets intersecting 4th Street.

B. The rates of parking meters fees for the parking meter zones described in this Section shall be set, from time to time, by resolution of the City Council, which rates may vary, at the discretion of the City Council, from zone to zone. (ORD-18-0029 § 1, 2018 ORD-15-0030 § 1, 2015 ORD-10-0018 § 1, 2010; ORD-06-0031 § 1, 2006)

CHAPTER 10.30 BEACH AREA PARKING LOTS

10.30.010 Designated—Definitions.

A. The beach area parking lots of the City shall be those parking lots owned by the City that are described and named as follows:

1. Ocean Beach parking lots. The Ocean Beach parking lots shall be those parking lots that lie south of Ocean Boulevard, which lots are individually named and described as follows:

a. Junipero Avenue parking lot. The Junipero Avenue parking lot is the parking lot located on the beach southerly of the intersection of Junipero Avenue and Ocean Boulevard.

b. Belmont Pier-Plaza parking lot. The Belmont Pier-Plaza parking lot is the parking lot located on the beach southerly of Allin Street between Belmont Pier on the west and the southerly projection of Termino Avenue on the east.

c. Granada Avenue parking lot. The Granada Avenue parking lot is the parking lot located on the beach southerly of Ocean Boulevard between the intersection of Ocean Boulevard and Bennett Avenue on the west and the intersection of Granada Avenue and Ocean Boulevard on the east.

d. La Verne Avenue parking lot. The La Verne Avenue parking lot is the parking lot located on the beach southerly of the intersection of Ocean Boulevard and La Verne Avenue.

e. Fifty-Fourth Place parking lot. The Fifty-Fourth Place parking lot is the parking lot located on the beach southerly of Ocean Boulevard between the southerly projection of Bay Shore Avenue on the west and the southerly projection of Fifty-Fourth Place on the east.

f. Seventy-Second Place parking lot. The Seventy-Second Place parking lot is the parking lot located on the beach southerly of the easterly projection of Ocean Boulevard between Seventy-First Place on the west and the Alamitos Bay entrance channel on the east.

g. Alamitos Avenue parking lot. The Alamitos Avenue parking lot is the parking lot located on the beach southerly of Ocean Boulevard and easterly of the southerly prolongation of Alamitos Avenue.

h. Claremont Launch Ramp parking lot. The Claremont Launch Ramp parking lot is located southerly of Ocean Boulevard at Claremont Avenue.

i. Davies Launch Ramp parking lot. The Davies Launch Ramp parking lot is located at 6201 East Second Street.

j. Shoreline Park parking lot. The Shoreline Park parking lot is the parking lot located easterly of the Queens Way Bridge and adjacent to Shoreline Park and Pierpoint Landing.

k. South Shore Launch Ramp and lot. The South Shore Launch Ramp and lot is the parking lot located on Queens Way Drive, westerly of the Queens Way Bridge.

2. Catalina Landing South parking lot. The Catalina Landing South parking lot is located west of Queens Way Bridge and east of the Catalina Landing Basin.

3. Alamitos Bay Beach parking lots. The Alamitos Bay Beach parking lots shall be those defined, described and named as follows:

a. Bay Shore playground parking lot. The Bay Shore playground parking lot is the parking lot located northerly of Ocean Boulevard between Fifty-Fourth Place on the west and Fifty-Fifth Place on the east.

b. Marine Park parking lot. The Marine Park parking lot is the parking lot located adjacent to Marine Park, which lot lies southeasterly of the northeasterly projection of Ravenna Drive and lies northerly and northeasterly of Appian Way.

4. Colorado Lagoon Beach parking lots. The Colorado Lagoon Beach parking lots shall be those defined, described and named as follows:

a. Colorado Lagoon South parking lot. The Colorado Lagoon South parking lot is the parking lot that lies northeasterly of Appian Way between the intersection of Appian Way and Park Avenue on the west and the intersection of Appian Way and Colorado Boulevard on the east, between the Appian Way and the Colorado Lagoon.

b. Colorado Lagoon North parking lot. The Colorado Lagoon North parking lot is the parking lot that lies between Recreation Park 9-hole Golf Course and the Colorado Lagoon, southerly of Sixth Street.

5. Shoreline Marina parking lots. The Shoreline Marina parking lots shall be defined, described and named as follows:

a. Marina Green parking lot. The Marina Green parking lot is the parking lot located southerly of Shoreline Drive and adjacent to and easterly of Shoreline Village Drive and north of the Shoreline Marina.

b. Shoreline Marina parking lot. The Shoreline Marina parking lot is the parking lot located southerly of Shoreline Drive adjacent to and easterly of Shoreline Village Drive immediately north of the Shoreline Marina and is commonly referred to as the boat owners' lot from gangways R through GG.

c. West Mole parking lot. The West Mole parking lot is the parking facility located on the west mole of the Shoreline Marina.

6. Alamitos Bay Marina parking lots. Alamitos Bay Marina parking lots are those located at marina Basins 1, 2, 3, 4, 5 and 6 and Naples Landing as defined in Section 16.08.130 of the Long Beach Municipal Code.

B. "Parking meter" shall have the same meaning as set forth in Section 10.28.010 of the Long Beach Municipal Code.

C. "Slot meter" means any device with numbered apertures to receive money corresponding to the similar numbered parking space. (ORD-10-0004 § 1, 2010; Ord. C-7969 §§ 1, 2, 2005; Ord. C-7682 §§ 1, 2, 2000; Ord. C-7043 § 1, 1992: Ord. C-5956 § 1, 1983; Ord. C-5712 § 2 (part), 1981: prior code § 7310)

10.30.020 Parking fees—Required—Exceptions.

A. No person shall park, stand, or stop any vehicle in any parking space in a beach area parking lot during a period for which a parking time limit is applicable to such space without paying the posted parking fee.

B. Subsection A of this Section shall not apply to a vehicle displaying a currently-valid veteran's license plate, as defined in Section 10.28.010 of this Code. (ORD-07-0003 § 2, 2007: Ord. C-5712 § 2 (part), 1981: prior code § 7310.1)

10.30.030 Parking fees—Amount and manner of collection.

The City Manager shall determine the amount of and the most efficient manner of collecting parking fees for use of the beach area parking lots and, upon approval thereof by the City Council, shall place and maintain or cause to be placed and maintained signs giving notice thereof. (Ord. C-5712 § 2 (part), 1981: prior code § 7310.2)

10.30.040 Parking fees—Period not applicable.

No parking fee shall be collected for lot use prior to eight o'clock (8:00) a.m. or subsequent to eight o'clock (8:00) p.m. For all beach area parking lots, with the exception of the Shoreline Park parking lot and the Marina Green parking lot. No parking fee shall be collected for lot use prior to eight o'clock (8:00) a.m. or subsequent to twelve midnight (12:00) a.m. for the Shoreline Park parking lot and Marina Green parking lot. This Section is applicable except as provided in Section 10.30.090. (ORD-10-0004, § 2, 2010; Ord. C-5712 § 2 (part), 1981: prior code § 7310.3)

10.30.050 Special regulations—Parking time limits.

In no case shall the time limit during which a parking fee is payable for lot use on any day be in excess of a single sixteen (16) hour period. (ORD-10-0004, § 3, 2010; Ord. C-6948 § 1, 1991: Ord. C-5712 § 2 (part), 1981: prior code § 7310.4)

10.30.060 Special regulations—Method of parking.

No person shall park, stand, or stop any vehicle in any beach area parking lot except within parking spaces designated by lines or marks on the curbs or pavement. (Ord. C-5712 § 2 (part), 1981: prior code § 7310.5)

10.30.070 Special regulations—Seventy-two hour parking limit.

A. Except as provided in Section 10.30.090, no person shall leave any vehicle parked or standing and no registered owner of such vehicle shall permit or allow such vehicle to remain parked or standing in any beach area parking lot for a period longer than seventy-two (72) hours from the time such vehicle is posted; provided, however, such posting shall not authorize the parking or standing of vehicles in any beach area parking lot in violation of applicable parking limits specified by other provisions of this Chapter.

B. Whenever any Police Officer or Marine Bureau employee designated in Section 16.08.340, determines by tire marking or otherwise that any vehicle has been standing in one (1) position for a period in excess of the time limit designated by signs giving notice thereof, he shall securely attach a notice in a conspicuous place upon such vehicle setting forth in such notice a reference to this Section, the location of the vehicle at the time, the date of such notice, and the approximate hour of posting.

C. For the purpose of this Section, a vehicle shall be deemed to have been left standing when such vehicle shall not have been removed completely out of the parking lot under its own power.

D. Any vehicle parked for a period longer than seventy-two (72) hours from the time of posting as hereinabove set forth, may be removed from the beach parking lot by any Police Officer or by a designated Marine Bureau employee in accordance with procedures set forth in the California Vehicle Code. (Ord. C-5712 § 2 (part), 1981: prior code § 7310.6)

10.30.080 Special regulations—Prohibition against overnight parking in designated lots.

A. No person shall park any vehicle in the following parking lots between the hours of ten o'clock (10:00) p.m. and one (1) hour before sunrise of the following day:

1. La Verne Avenue lot;
2. Fifty-Fourth Place lot;
3. Bayshore playground lot;
4. Basin 7 parking lot (Naples Landing);
5. Marina Green lot;
6. Shoreline Marina lot (R—GG boat owners);
7. West Mole lot (A—P boat owners);
8. Basins 1, 2, 3, 4, 5 and 6 parking lots;
9. Alamitos Bay Marina parking lot, Basin 8;
10. Boathouse Lane lot;
11. Alamitos Avenue lot.

B. No person shall park any vehicle in the following parking lots between the hours of twelve o'clock (12:00) midnight and one (1) hour before sunrise of the following day:

1. Belmont Pier lot;

2. Granada Avenue.

C. No person shall park any vehicle in the following parking lots between one (1) hour after sunset and one (1) hour before sunrise of the following day:

1. Seventy-Second Place lot;
2. Marine Park lot;
3. Colorado Lagoon South lot;
4. Junipero Avenue lot.

D. No person shall park any vehicle in the following parking lots between one (1) hour after sunset and eight o'clock (8:00) a.m. of the following day:

1. Granada Avenue launch ramp and lot;
2. Claremont Avenue launch ramp and lot;
3. Marine Stadium launch ramp;
4. Colorado Lagoon North lot.

E. Parking and launching of vessels is permitted twenty-four (24) hours a day or at any time at the Davies launch ramp and lot.

F. The City Manager shall place and maintain or cause to be placed and maintained signs giving notice of the hours of closing of all beach area parking lots.

G. Notwithstanding any other provision of this Section 10.30.080, overnight parking is permitted in any parking lot mentioned in such section with a permit issued by the Director of Parks, Recreation and Marine, or his designee, at a fee to be established by City Council resolution. (Ord. C-7969 § 3, 2005; Ord. C-7832 § 1, 2002: Ord. C-7682 § 3, 2000: Ord. C-7211 § 1, 1994: Ord. C-7118 § 1, 1993: Ord. C-7043 § 2 (part), 1992: Ord. C-6001 § 1, 1983: Ord. C-5712 § 2 (part), 1981: prior code § 7310.7)

10.30.090 Special regulations—Prohibition against overnight parking of certain vehicles.

No person shall park any bus, camper, house car, trailer coach or any other vehicle adapted for human habitation or occupancy in any beach area parking lot between the hours of midnight (12:00 a.m.) and 5:00 a.m. without a permit issued by the Manager of the Marine Bureau pursuant to rules and regulations promulgated by the City Manager and approved by the City Council. The City Manager shall place and maintain or cause to be placed and maintained signs giving notice of the parking restrictions provided for in this Section. (Ord. C-5712 § 2 (part), 1981: prior code § 7310.8)

10.30.100 Special regulations—Prohibition against camping.

No person shall camp or lodge within any beach area parking lot. (Ord. C-5712 § 2 (part), 1981: prior code § 7310.9)

10.30.110 Special regulations—Buses and vehicles of excessive length.

Unless directed by an authorized City employee, no person shall park, stand, or stop any bus or other vehicle of excessive length within any beach area parking lot in such a manner as to occupy more than two (2) parking spaces or as to constitute an obstruction of the traffic lanes within the lot. For the purpose of this Section, the definition of a "bus" shall be that set forth in California California Vehicle Code § 233. (Ord. C-5712 § 2 (part), 1981: prior code § 7310.10)

10.30.120 Special regulations—Vehicles with trailers.

A. No person shall park, stand or store any unattached boat trailer in the Shoreline Marina parking lot or the Alamitos Bay Marina parking lot without a permit issued by the Manager of the Marine Bureau pursuant to rules and regulations promulgated by the City Manager and approved by the City Council.

B. No person shall park, stand or stop any motor vehicle and trailer in any beach area parking lot unless the trailer is uncoupled from the motor vehicle and placed in a separate parking space.

C. For those lots in which parking meters or slot meters have been installed, no person shall park, stand or stop any motor vehicle and trailer occupying two (2) metered spaces without depositing in each parking meter or slot meter aperture the appropriate coin or coins indicated on the

parking meter or slot meter. (Ord. C-7969 § 4, 2005; Ord. C-7043 § 2 (part), 1992: Ord. C-5712 § 2 (part), 1981: prior code § 7310.11)

10.30.121 Special regulations—Speed limit.

No person shall operate any vehicle within a beach area parking lot or any access road thereto in excess of fifteen (15) miles per hour. The City Manager shall place and maintain or cause to be placed and maintained signs giving notice of the speed limit restriction. (Ord. C-5956 § 35, 1983)

10.30.122 Special regulations—Parking permits.

The City Manager may adopt, amend, modify or repeal regulations concerning parking of vehicles in the Shoreline Marina parking lots pursuant to permits and shall place and maintain or cause to be placed and maintained signs giving notice of the parking restrictions in said parking lots. (Ord. C-7969 § 5, 2005: Ord. C-5956 § 36, 1983)

10.30.123 Special regulations—Driving in beach area parking lots.

A. Except when a parking space is not available, no person shall repeatedly drive a motor vehicle within the beach area parking lots past a traffic control point established pursuant to this Section three (3) times within any fifteen (15) minute period. Each successive trip past the traffic control point shall constitute a separate violation of this Section, and no additional notice shall be required prior to issuance of a second or subsequent citation.

B. Any peace officer or Marine Bureau employee designated in Section 16.08.340 may establish one (1) or more traffic control points within the beach area parking lots to enforce the provisions of this Section.

C. "Repeatedly drive" is defined to mean the driving of a motor vehicle three (3) or more times within a fifteen (15) minute period past a traffic control point as established pursuant to this Section, when signs are posted at the entrance to the beach parking lot which state the provisions of this Section.

D. The provisions of this Section shall not apply to:

1. Any authorized vehicle as defined in California California Vehicle Code § 165;

2. Any publicly owned vehicle of any City, County, district, State or federal agency;

3. Any vehicle licensed for public transportation or vehicles which are normally used for business purposes and are engaged in such business use.

E. It shall be an infraction for any person to violate this Section, and upon conviction thereof shall be subject to the payment of penalties as provided in California California Vehicle Code § 42001, and as that section may be amended. (Ord. C-7043 § 6, 1992)

CHAPTER 10.32 PREFERENTIAL RESIDENTIAL PARKING

10.32.010 Purpose.

This Chapter is enacted pursuant to authority granted by California California Vehicle Code §§ 22507 and 22507.5, to alleviate serious problems in certain residential areas of the City due, in part, to the misuse of available off-street parking, the parking of motor vehicles on-streets therein by nonresidents thereof for extended periods of time, and the ignoring of public transit alternatives to automobile travel available to said nonresidents, resulting in neighborhood decline in said areas by reason of traffic congestion, noise, air pollution, traffic hazards and inability of residents therein to park their motor vehicles near their residences. (Ord. C-6588 § 1 (part), 1989: Ord. C-5511 § 1 (part), 1979: prior code § 3410.600)

10.32.020 Designation and termination of districts.

A. The City Traffic Engineer shall provide petition forms for preferential parking districts.

B. Designation.

1. Proceedings for designating a preferential parking district may be initiated by petition containing the signatures of at least two-thirds (2/3) of the residents of all units of occupancy fronting

curbs proposed to be included in the district. The petition shall indicate and set forth the positive desire of all signators for preferential parking privileges and their willingness to assume all associated administrative and enforcement costs, by affixing their signature, printed name, and address to the petition calling for the creation of a district. The petition shall be distributed and presented to the City Council by advocates of such district's creation.

2. The City Council shall set a place for a public hearing on the proposed district. The City Clerk shall mail notice of the hearing at least ten (10) days prior to the hearing to all property owners, residents and commercial occupants within the proposed district and within four hundred feet (400') of the boundaries of such district, measured from the outer edges of the rights-of-way constituting the outer district boundaries.

C. Following the receipt of the petition, and following the public hearing, the City Council shall determine if the district is to be designated for preferential parking. That determination shall be based upon, but not limited to, substantial compliance with the following guidelines:

1. High demand. More than seventy-five percent (75%) of on-street spaces are occupied during period proposed for parking restriction or prohibition. In cases where a time limit parking restriction or parking prohibition is already in place, the City Traffic Engineer shall use reasonable judgment as to whether the demand criteria would likely be met without the restriction or prohibition.

2. Self-contained area. The district, alone or in combination with other existing or potential preferential parking districts, constitutes a reasonably self-contained area of parking demand and supply. The City Traffic Engineer shall make the determination of a reasonably self-contained area, utilizing boundaries such as major streets, nonresidential land uses, edges of higher or lower density residential areas, waterbodies and other natural features; and utilizing surveys of existing conditions to determine extent of area impacted by nonresident parking. The City Traffic Engineer shall designate each such self-contained preferential parking district with a unique letter or combination of letters, which shall be the official designation of said district. The purpose of this designation process is to ensure that proposed preferential parking districts are of sufficient size as to reasonably encompass the problem area and to offer sufficient on-street parking spaces to provide reasonable opportunity for residents to obtain parking.

3. If the district is proposed solely for daytime preferential parking, the following guidelines shall apply:

Nonresidential users. More than fifty percent (50%) of vehicles parked at curbside during the period proposed for parking restriction or prohibition are owned by nonresidents of the district. In cases where a time limit parking restriction or prohibition is already in place, the City Traffic Engineer shall use reasonable judgment as to whether the demand criteria would likely be met without the restriction or prohibition.

4. Such additional criteria may be applied as the City Council may deem and identify as reasonably related to the designation of such districts.

D. 1. The City Council may terminate a preferential parking district upon receipt of a petition calling for such termination which has been received and transmitted by the City Clerk, and contains signatures and the corresponding printed name and address representing a majority (50 percent (50%) plus one (1)) of the dwelling units in the district. The City Council may also terminate such district, without petition, based upon, but not limited to, any changes in the criteria upon which the original designation was based.

2. The City Traffic Engineer shall annually review the status of each preferential parking district formed under this Chapter 10.32, and if the City Traffic Engineer determines that a substantial number of eligible persons within the district have failed to apply for and receive preferential parking permits, the engineer may recommend termination of district designation to the City

Council. (Ord. C-7801 § 2, 2002: Ord. C-6588 § 1 (part), 1989: Ord. C-5511 § 1 (part), 1979: prior code § 3410.601)

10.32.030 Permits—Issuance.

A. The Department of Financial Management shall issue preferential parking permits. Preferential parking permits shall be of three (3) types: Residential preferential parking permits; guest preferential parking permits; and temporary preferential parking permits. Except for guest preferential parking permits, no more than one (1) permit shall be issued for each vehicle for which application is made. Each permit issued shall reflect by statements thereon or by color thereof, or both, the particular preferential parking district for which the permit is issued and, except for guest preferential parking permits, the permit shall reflect the license number of the vehicle for which the permit is issued.

B. Preferential parking permits may be issued only for passenger vehicles, pickup trucks, and vans, and only upon application of a person whose legal address is on a street, or portion thereof, designated as part of a preferential parking district in Section 10.32.110.

C. Preferential permits may be issued as follows:

1. Up to three (3) residential permits may be purchased per address. For each residential permit, proof of residency and registered ownership or exclusive use and control of a vehicle shall be demonstrated in a manner determined by the Director of Financial Management. The applicant shall provide the vehicle license plate number and such additional information as the Director of Financial Management deems necessary for the proper processing of the application.

2. One (1) guest parking permit may be purchased per address. A guest parking permit may be issued to a person whose legal address is on a street, or portion thereof, designated as part of a preferential parking district in Section 10.32.110. Use of a guest permit is limited to visitors and providers of services to the applicant or the applicant's residence and is not limited to a particular vehicle. The applicant is responsible for the proper use of the guest parking permit.

3. Temporary preferential parking permits may be issued for bona fide guests of residents of a preferential parking district provided that such permits shall be valid for no more than seven (7) consecutive days. (Ord. C-7514 § 1, 1997: Ord. C-6588 § 1 (part), 1989: Ord. C-5511 § 1 (part), 1979: prior code § 3410.602)

10.32.040 Permit—Application and term.

A. Except for temporary preferential parking permits, each preferential parking permit shall be issued by the Department of Financial Management on a calendar year basis, and each such permit shall expire at midnight (12:00 a.m.), December 31 next following its issuance. Permits may be renewed annually by mail. Each application or reapplication shall contain such information as the Director of Financial Management deems necessary for the proper processing of the application. The application shall also contain a statement to the effect that the applicant agrees that the permit applied for may not be sold or transferred in any manner, except that a guest permit may be used by various visitors and service people to the applicant's residence. The application shall also state that the sale or transfer of a permit in violation of this Chapter shall be subject to a fine in the amount of one hundred dollars ($100.00), and that any misuse of any permit issued under this Section is grounds for revocation of the permit by the Director of Financial Management pursuant to this Chapter.

B. An application may be submitted by either the owner of the property for which a permit is sought or the tenant of such property, but in the case of applications submitted by tenants, the owner of the property shall also be required to sign the application form. (Ord. C-7514 § 2, 1997: Ord. C-6588 § 1 (part), 1989: Ord. C-5511 § 1 (part), 1979: prior code § 3410.603)

10.32.050 Permit—Fee.

Applications for issuance of initial permits, renewal permits, transfer permits in the case of a

holder of a permit in one (1) preferential parking district moving to another preferential parking district and desiring a new permit for the latter district, or a replacement permit in the case of a lost or mutilated permit, shall be filed with the Department of Financial Management and shall be accompanied by such fee therefor as may be established from time to time by resolution of the City Council. The fee charged for permits issued for less than twelve (12) months may be reduced in proportion to the time already elapsed in the current calendar year for which the permit would be valid. The Director of Financial Management shall not issue a replacement permit unless the Director has received satisfactory evidence that the permit being replaced has been lost or mutilated. (Ord. C-6588 § 1 (part), 1989: Ord. C-5511 § 1 (part), 1979: prior code § 3410.604)

10.32.060 Permits—Display.

Residential parking permits shall be firmly attached to the left side of the rear bumper of the vehicle for which the permit is issued so as to be readily visible to a person approaching the vehicle from the rear thereof. Guest permits or temporary permits shall be displayed from the rear-view mirror or by such other method as directed in instructions contained on the permit itself. (Ord. C-7514 § 3, 1997: Ord. C-6588 § 1 (part), 1989: Ord. C-5511 § 1 (part), 1979: prior code § 3410.604)

10.32.070 Permits—Revocation or fine for misuse.

A. The Director of Financial Management is authorized to revoke a preferential parking permit or a guest parking permit of any person found to be in violation of any of the provisions of this Chapter and, upon the written notification thereof, such person shall surrender the permit to the Director or prove its destruction or disfigurement to the Director's satisfaction. Additionally, the sale or transfer of a permit in violation of this Chapter shall constitute an infraction punishable by a fine of one hundred dollars ($100.00).

B. Any person whose preferential parking permit has been revoked shall not be issued a new permit until expiration of a period of one (1) year following the date of revocation and until such person has made required application therefor and has paid the fee required for a renewal permit. (Ord. C-7514 § 4, 1997: Ord. C-6588 § 1 (part), 1989: Ord. C-5511 § 1 (part), 1979: prior code § 3410.609)

10.32.080 Sign posting.

The City Traffic Engineer shall place and maintain or cause to be placed and maintained on each of the streets, or portions of streets, designated in Section 10.32.110, appropriate signs notifying the public that vehicles must display preferential parking permits as well as showing the applicable time limits for parking of vehicles without said permits. (Ord. C-6588 § 1 (part), 1989: Ord. C-5511 § 1 (part), 1979: prior code § 3410.606)

10.32.090 Enforcement hours/overnight parking prohibited.

Preferential parking referenced in this Chapter shall be in effect and enforced on such days of the week and during such time periods as shall be determined by the City Council when designating each preferential parking district, provided that if the district is designated for overnight parking permits, the City Council shall, if it has not previously done so, thereupon adopt an ordinance providing that no vehicle shall be parked on any public street or alley within that area between the hours of two o'clock (2:00) a.m. and six o'clock (6:00) a.m. except as permitted by this Chapter. (Ord. C-6588 § 1 (part), 1989: Ord. C-5511 § 1 (part), 1979: prior code § 3410.610)

10.32.100 Parking privileges for permit holders.

Any passenger vehicle, pickup truck or van properly displaying valid, unrevoked preferential parking permits may be parked on any of the streets, or portions of streets, designated in Section 10.32.090 for which said permits have been issued without being limited by time restrictions on parking, other than those in effect for purposes of street sweeping or of prohibiting parking or

stopping at any time or of prohibiting parking more than seventy-two (72) consecutive hours, set forth in this Title and applicable generally to parking of vehicles. Preferential parking permits shall not guarantee or reserve to the holder thereof any on-street parking space. (Ord. C-6588 § 1 (part), 1989: Ord. C-5511 § 1 (part), 1979: prior code § 3410.607)

10.32.110 Areas designated.

The streets, and portions of streets, enumerated in this Section are designated as preferential parking districts for the purposes of this Chapter.

District A: Linden Avenue between Bixby Road and Carson Street; Roosevelt Road between Long Beach Boulevard and the alley west of Atlantic Avenue.

District B: Ultimo Avenue between Sixth Street and Seventh Street.

District C: West side of California Avenue between Armando Drive and Roosevelt Road.

District D: Both sides of Malta Street between Gish Avenue and Park Avenue; both sides of Gish Avenue between Park Avenue and Malta Street; and both sides of Park Avenue from Pacific Coast Highway to Atherton Street.

District E: Zona Court between Fourth Street and Fifth Street.

District F: Village Road between Blackthorne Avenue and Faculty Avenue; Greenmeadow Road between Faculty Avenue and a point two hundred twenty-five feet (225′) east of Village Road; Sunfield Avenue between Harvey Way and Centralia Street; Whitewood Avenue between Harvey Way and Centralia Street; Clark Avenue between Carson Street and Centralia Street; Greenbrier Road between Carson Street and Centralia Street; Heather Road between Carson Street and Centralia Street; Charlemagne Avenue between Carson Street and Centralia Street; Harvey Way between Rutgers Avenue and Pepperwood Avenue; Warwood Road between Faculty Avenue and Blackthorne Avenue; Faculty between Carson Street and Centralia Street; Graywood Avenue between Harvey Way and Centralia Street; Blackthorne Avenue between Village Road and Centralia Street; Hazelbrook Avenue between Harvey Way and Centralia Street; Pepperwood Avenue between Village Road and Centralia Street; the north side of Carson Street between the alley east of Norse Way and Faculty Avenue; and the north side of Carson Street between Clark Avenue and Charlemagne Avenue.

District G: Vuelta Grande Avenue between Snowden Avenue and Benmore Street; Benmore Street between Snowden Avenue and Vuelta Grande Avenue; Wentworth Street between Senasac Avenue and Snowden Avenue; Senasac Avenue between Belen Street and Wentworth Street; Snowden Avenue between Spring Street and the Los Cerritos Channel; the Spring Street service road between Snowden Avenue and its terminus west of Snowden Avenue and Senasac Avenue and Birkdale Street between Snowden Avenue and its terminus west of Snowden Avenue.

District H: Elm Avenue between Thirty-First Street and the San Diego Freeway.

District I: Both sides of Iroquois Avenue between Deleon Street and Rendina Street; both sides of Hackett Avenue between Anaheim Road and El Roble Street; both sides of Deleon Street from Palo Verde Avenue to the cul-de-sac; both sides of Josie Avenue between Deleon Street and Rendina Street; both sides of Espanita Street between Josie Avenue and the end of Espanita Street approximately three hundred fifty feet (350′) east of Josie Avenue; both sides of El Jardin Street between Hackett Avenue and Knoxville Avenue; both sides of Mantova Street between Hackett Avenue and Knoxville Avenue; both sides of Knoxville Avenue between El Jardin Street and Mantova Street; both sides of El Roble Street between Hackett Avenue and Knoxville Avenue; the west side of Iroquois Avenue between El Roble Street and Atherton Street; the east side of Iroquois Avenue from El Roble Street to the point one hundred ten feet (110′) north of El Roble Street; both sides of El Cedral Street from Iroquois Avenue to its terminus approximately two hundred feet (200′) west; both sides of Rendina Street between Hackett Avenue and Knoxville Avenue; both sides of Knoxville Avenue between Rendina Street and El Roble Street; both sides of Driscoll Street

from Josie Avenue to its terminus approximately three hundred fifty feet (350′) east; and both sides of Bacarro Street from Josie Avenue to its terminus approximately three hundred fifty feet (350′) east.

District J: Campo Walk between Riviera Walk and Campo Drive; Riviera Walk between Tivoli Drive and Garibaldi Lane; Tivoli Drive between St. Irmo Walk and Riviera Walk.

District K: Randolph Place between Virginia Road and the alley west of Long Beach Boulevard.

District L: The east side of Petaluma Avenue between Driscoll Street and Atherton Street; both sides of Studebaker Road service road west from Vuelta Grande Avenue to its terminus approximately seven hundred feet (700′) south; and both sides of Almada Street from Studebaker Road service road west to its terminus approximately one hundred feet (100′) west.

District M: Eighteenth Place from Ocean Boulevard south to its terminus.

District N: Greenbrier Road between the east-west alley located north of Anaheim Road and El Cedral Street; El Cedral Street between Greenbrier Road and Elmfield Avenue; El Roble Street between Greenbrier Road and El Prado Avenue; Los Flores Street between Greenbrier Road and El Prado Avenue; Vista Hermosa Street between Greenbrier Road and El Prado Avenue; and El Prado Avenue between Ramillo Avenue and the east-west alley located north of Anaheim Road.

District O: The east side of Palo Verde Avenue between the east-west alley immediately north of Atherton Street and Marita Street; both sides of Hackett Avenue between Atherton Street service road and Marita Street; both sides of Iroquois Avenue between Atherton Street service road and Marita Street; both sides of Marita Street between Palo Verde Avenue and Iroquois Avenue.

District P: Sixth Street between Silvera Avenue and a point one hundred fifty feet (150′) west of Margo Avenue; Parima Street from Margo Avenue to easterly terminus; Lausinda Avenue from Parima Street to the northwest terminus; Monita Street between Margo Avenue and Peralta Avenue; Margo Avenue between Sixth Street and Vista Street; Daroca Avenue from Margo Avenue to Vista Street; Vista Street between Daroca Avenue and Palo Verde Avenue; Fifth Street between Margo Avenue and Silvera Avenue; Laurinda Avenue between Fifth Street and Vista Street; Linares Avenue between Fifth Street and Vista Street; Peralta Avenue between Monita Street and Vista Street; Silvera Avenue between Fifth Street and Vista Street; the west side of Silvera Avenue between Seventh Street and Fifth Street; Vermont Street from Silvera Avenue to the easterly terminus; Colorado Street from Silvera Avenue to the easterly terminus; Eliot Street from Silvera Avenue to the easterly terminus; Mariquita Street from Silvera Avenue to the easterly terminus; the south side of Fifth Street from Silvera Avenue to the easterly terminus.

District Q: The east side of Locust Avenue between Willow Street and Twenty-Seventh Street.

District R: Both sides of McNab Avenue between Atherton Street service road and Marita Street; both sides of Conquista Avenue between Atherton Street service road and Dayman Street; both sides of Fanwood Avenue between Atherton Street service road and Los Santos Drive; both sides of Dayman Street between Snowden Avenue and Conquista Avenue; both sides of Dayman Street between Snowden Avenue and Conquista Avenue; both sides of the Palo Verde Avenue service road between the Atherton Street service road and Marita Street; both sides of Tevis Avenue between the Atherton Street service road and Dayman Street; both sides of Snowden Avenue between the Atherton Street service road and Dayman Street; both sides of Carfax Avenue between the Atherton Street service road and Marita Street; both sides of Marita Street between Fanwood Avenue and the Palo Verde Avenue service road; both sides of Faust Avenue between Marita Street and end of the cul-de-sac; both sides of Senasac Avenue between Marita Street and end of the cul-de-sac; both sides of College Circle between the Atherton Street service road east and the Atherton Street service road west; both sides of College Place between the Atherton Street service

road and College Circle; both sides of Fairbrook Street between Snowden Avenue and Conquista Avenue; both sides of Conquista Avenue between Marita Street and Fairbrook Street; both sides of the Atherton Street service road between Fanwood Avenue and the Palo Verde Avenue service road; both sides of Snowden Avenue between Marita Street and Los Santos Drive.

District S: The south side of Pavo Street between Rutgers Avenue and Montair Avenue.

District T: Both sides of Prospect Avenue, from Tenth Street to a point three hundred feet (300') north of Tenth Street.

District U: The west side of Britton Drive between Atherton Street and Marita Street; both sides of Britton Drive between Marita Street and Los Santos Drive; both sides of Marita Street between Britton Drive and Fanwood Avenue; both sides of Lave Avenue between Atherton Street and Los Santos Drive; the east side of San Anseline Avenue between Atherton Street and Los Santos Drive; both sides of San Vicente Avenue between Marita Street and Los Santos Drive; both sides of Garford Street between San Vicente Avenue and Los Santos Drive; both sides of Fairbrook Street between San Vicente Avenue and Los Santos Drive; north side of Los Santos Drive between Chatwin Avenue and San Anseline Avenue; both sides of Los Santos Drive between San Anseline Avenue and Garford Street/Ocana Avenue; both sides of Chatwin Avenue between Atherton Street and Garford Street; both sides of Marber Avenue between Atherton Street and Garford Street; both sides of Garford Street between Marber Avenue and San Anseline Avenue; both sides of San Anseline Avenue between Los Santos Drive and the alley north of Garford Street (between Garford Street and Britton Drive); and both sides of Lave Avenue between Los Santos Drive and Britton Drive.

District V: Granada Avenue between Anaheim Street and Pacific Coast Highway; both sides of Anaheim Place and Russell Drive between Pacific Coast Highway and Fourteenth Street; both sides of Park Avenue between Pacific Coast Highway and Anaheim Street; Roycroft Avenue between Anaheim Street and Fifteenth Street; south side of Fifteenth Street between Park Avenue and Roycroft Avenue; both sides of Fifteenth Street between Ximeno Avenue and Roycroft Avenue; both sides of Argonne Avenue between Anaheim Street and Pacific Coast Highway; both sides of Quincy Avenue between Anaheim Street and Fourteenth Street; and both sides of Fourteenth Street between Prospect Avenue and Pacific Coast Highway.

District W: Both sides of Umatilla Avenue between Anaheim Street and Verde Court and both sides of Verde Court between Umatilla Avenue and Termino Avenue.

District X: South side of Bixby Road between Lime Avenue and California Avenue.

District Y: West side of Bellflower Boulevard west service road from the alley two hundred forty-five feet (245') north of Spring Street to Pageantry Street; both sides of Pageantry Street from Bellflower Boulevard east service road to Marber Avenue, and east side of Bellflower Boulevard east service road from Pageantry Street to a point two hundred eighty feet (280') north of Pageantry Street.

District Z: The east side of Clark Avenue between Atherton Street and Stearns Street; both sides of Greenbrier Road between Atherton Street and Stearns Street; both sides of Bayard Street between Clark Avenue and Greenbrier Road; both sides of Garford Street between Clark Avenue and Fidler Avenue; both sides of Fidler Avenue between Greenbrier Road and Litchfield Avenue and the north side of Atherton Street between Clark Avenue and Greenbrier Road; and both sides of Calderwood Street between Greenbrier Road and Litchfield Avenue; and both sides of Litchfield Avenue between Fidler Avenue and Calderwood Street.

District AA: South side of Parkcrest Street between Marber Avenue and Albury Avenue; both sides of Marber Avenue between Parkcrest Street and Hanbury Street; both sides of San Anseline Avenue between Parkcrest Street and approximately four hundred feet (400') south of Parkcrest Street; and both sides of Albury Avenue between Parkcrest Street and Hanbury Street.

District AB: North side of Anaheim Road between Studebaker Road and El Jardin Street; both sides of Anaheim Road between El Jardin Street and Almada Street; both sides of El Jardin Street between Studebaker Road and Anaheim Road; both sides of 11th Street between Kallin Avenue and Stevely Avenue; both sides of 10th Street between Kallin Avenue and Stevely Avenue; both sides of 9th Street between Studebaker Road and Roxanne Avenue; west side of Kallin Avenue between 9th Street and a point 95 feet north of 9th Street; east side Kallin Avenue between 9th Street and Anaheim Road; both sides of Almada Street between Studebaker Road and Anaheim Road; both sides E. Studebaker Road (service road), between El Jardin Street and Deleon Street; and both sides of Mantova Street between Studebaker Road and a point 365 feet east of Studebaker Road.

District AC: West side of Cherry Avenue (service road) between Bixby Road and Marshall Place, Gardenia Avenue between Bixby Road and Marshall Place, Marshall Place between Gardenia Avenue and Cherry Avenue, Roosevelt Road between Gardenia Avenue and Cherry Avenue and Bixby Road between Gardenia Avenue and Cherry Avenue.

District AD: East side of Clark Avenue between Conant Street and the alley immediately north of Hanbury Street, Hanbury Street between Clark Avenue and Charlemagne Avenue, north side of Harco Street between Clark Avenue and Greenbrier Road, Greenbrier Road between Ebell Street and Parkcrest Street, Parkcrest Street between Greenbrier Road and Charlemagne Avenue. (ORD-25-0009 § 1, 2025; ORD-17-0018(Emerg.) § 1, 2017; ORD-16-0016 § 1, 2016; ORD-16-0011 § 1, 2016; ORD-15-0041 § 1, 2015; ORD-15-0040 § 1, 2015; ORD-13-0009 § 1, 2013; ORD-12-0012 § 1, 2012; ORD-10-0021 § 1, 2010; ORD-10-0011 §§ 1, 2, 2010; ORD-09-0039 §§ 1—3, 2009; ORD-09-0032 § 1, 2009; ORD-07-0053 § 1, 2007; ORD-07-0052 § 1, 2007; ORD-06-0046 § 1, 2006; ORD-05-0024 § 1, 2005; ORD-05-0006 § 1, 2005; Ord. C-7970 § 1, 2005; Ord. C-7939 § 1, 2004; Ord. C-7935 §§ 1, 2, 2004; Ord. C-7907 § 1, 2004; Ord. C-7903 § 1, 2004; Ord. C-7902 § 1, 2004; Ord. C-7896 § 1, 2003; Ord. C-7890 § 1, 2003; Ord. C-7889 § 1, 2003; Ord. C-7811 § 1, 2002; Ord. C-7723 § 1, 2000; Ord. C-7710 § 1, 2000; Ord. C-7688 § 1, 2000; Ord. C-7671 §§ 2, 3, 2000; Ord. C-7657 § 1, 1999; Ord. C-7609 § 1, 1999; Ord. C-7606 § 1, 1999; Ord. C-7602 § 1, 1999; Ord. C-7587 § 1, 1999; Ord. C-7562 § 1, 1998; Ord. C-7512 § 1, 1997; Ord. C-7506 § 1, 1997; Ord. C-7486 § 1, 1997; Ord. C-7357 § 1, 1995; Ord. C-7353 § 1, 1995; Ord. C-7307 § 1, 1995; Ord. C-7244 § 1, 1994; Ord. C-7154 § 1, 1993; Ord. C-7136 § 1, 1993; Ord. C-7034 § 1, 1992; Ord. C-7029 § 1, 1992; Ord. C-7023 § 1, 1992; Ord. C-6965 § 1, 1992; Ord. C-6957 § 1, 1991; Ord. C-6943 § 1, 1991; Ord. C-6940 § 1, 1991; Ord. C-6887 § 1, 1991; Ord. C-6847 § 1, 1991; Ord. C-6815 § 1, 1990; Ord. C-6811 § 1, 1990; Ord. C-6795 § 1, 1990; Ord. C-6741 § 1, 1990; Ord. C-6703 § 1, 1990; Ord. C-6653 § 1, 1989; Ord. C-6588 § 1 (part), 1989; Ord. C-6583 § 1, 1989; Ord. C-6582 § 1, 1989; Ord. C-6577 § 1, 1989; Ord. C-6573 § 1, 1989; Ord. C-6572 § 1, 1989; Ord. C-6532 § 1, 1988; Ord. C-6529 § 1, 1988; Ord. C-6528 § 1, 1988; Ord. C-6525 § 1, 1988; Ord. C-6524 § 1, 1988; Ord. C-6482 § 1, 1988; Ord. C-6447 § 1, 1987; Ord. C-6446 § 1, 1987; Ord. C-6439 § 1, 1987; Ord. C-6438 § 1, 1987; Ord. C-6383 § 1, 1987; Ord. C-6336 § 1, 1987; Ord. C-6328 § 1, 1986; Ord. C-6280 § 1, 1986; Ord. C-5511 § 1 (part), 1979: prior code § 3410.611)

10.32.120 Violations designated.

A. No person shall falsely represent himself or herself as eligible for preferential parking permits or furnish false information in an application therefor to the Department of Financial Management.

B. No person shall park or leave standing in a Preferential Parking District a motor vehicle on which is displayed a preferential parking permit which has been issued pursuant to the provisions of this Chapter for a different passenger vehicle, pickup truck, or van.

C. No person shall copy, produce, or otherwise bring into existence a facsimile or counterfeit preferential parking permit without written authorization of the Director of Financial Management.

D. No person shall park or leave standing in a Preferential Parking District a motor vehicle on which is displayed a facsimile or counterfeit preferential parking permit.

E. No person whose preferential parking permit has been revoked shall refuse or fail to surrender the permit to the Director of Financial Management when requested by the Director, in writing, to do so. (Ord. C-6588 § 1 (part), 1989: Ord. C-5511 § 1 (part), 1979: prior code § 3410.608)

10.32.150 Rules and regulations.

The Director of Financial Management may, from time to time, promulgate rules and regulations, consistent with the purpose and provisions of this Chapter, to facilitate implementation of this Chapter, which rules and regulations may include, but need not be limited to, procedures for the application for and issuance and renewal of permits hereunder and provision for a limitation of the number of permits that may be issued per dwelling unit. (Ord. C-6588 § 1 (part), 1989)

CHAPTER 10.33 TEMPORARY CONSTRUCTION PREFERENTIAL PARKING DISTRICT

10.33.010 Purpose and intent.

This Chapter is enacted pursuant to authority granted by California Vehicle Code Sections 22507 and 22507.5, to alleviate serious problems in certain residential areas of the City due to temporary construction activities which may displace normal parking patterns and lead to the parking of motor vehicles on streets by nonresidents thereof for extended periods of time, and the ignoring of public transit alternatives to automobile travel available to said nonresidents, resulting in neighborhood decline in said areas by reason of traffic congestion, noise, air pollution, traffic hazards and inability of residents therein to park their motor vehicles near their residences. (ORD-12-0017(Emerg.) § 1, 2012)

10.33.020 Administration.

The City Traffic Engineer is designated as administrator for the Temporary Construction Preferential Parking District. The City Traffic Engineer may adopt rules and regulations governing the issuance of parking permits and the establish-

ment of Temporary Construction Preferential Parking Districts. Such rules and regulations shall be consistent with the provisions of California Vehicle Code Section 22507.
(ORD-12-0017(Emerg.), § 1, 2012)

10.33.030 Designation and termination of Temporary Construction Preferential Parking Districts.

A. Severe parking impacts, defined as more than seventy-five percent (75%) of on-street spaces occupied during the period proposed for parking restriction or prohibition, have been created in any residential area of the City of Long Beach by construction activity. In cases where a time limit parking restriction or parking prohibition is already in place, the City Traffic Engineer shall use reasonable judgment as to whether the demand criteria would likely be met without the restriction or prohibition.

B. Construction activity must be of a duration of a minimum of two (2) weeks and a maximum of six (6) months. The duration of the Temporary Construction Preferential Parking District shall be coterminous with the duration of the construction project and its impacts, and shall be discontinued upon completion of construction and cessation of parking impacts, as determined by the City Traffic Engineer. In the event that the construction impacts are of a longer duration than six (6) months, the Temporary Construction Preferential Parking District may be renewed for two (2) additional six (6) month periods. No Temporary Construction Preferential Parking District shall have a duration of more than eighteen (18) months. If the construction activity lasts for more than eighteen (18) total months, residents must apply for a Preferential Parking District authorized by Long Beach Municipal Code Section 10.32.010 et seq., and conform with the requirements stated therein.

C. The proposed Temporary Construction Preferential Parking District, alone or in combination with other existing or potential Preferential Parking Districts, constitutes a reasonably self-contained area of parking demand and supply. The City Traffic Engineer shall make the determination of a reasonably self-contained area, utilizing boundaries such as major streets, nonresidential land uses, edges of higher or lower density residential areas, waterbodies and other natural features, and utilizing surveys of existing conditions to determine extent of area impacted by nonresident parking. The proposed Temporary Construction Preferential Parking District shall be of sufficient size to reasonably encompass the problem area and to offer sufficient on-street parking spaces to provide reasonable opportunity for residents to obtain parking.
(ORD-12-0017(Emerg.), § 1, 2012)

10.33.040 Posting of signs.

Upon adoption of this ordinance, the City Traffic Engineer shall be authorized to cause appropriate signs to be erected in the Temporary Construction Preferential Parking District as designated by the City Traffic Engineer, indicating prominently thereon the time limitation, period of day for its application and conditions under which permit parking shall be exempt therefrom.
(ORD-12-0017(Emerg.), § 1, 2012)

10.33.050 Issuance of permits.

A. The Public Works Department, Office of the City Traffic Engineer, shall issue Temporary Construction Preferential Parking Permits. Each permit issued shall reflect by statements thereon or by color thereof, or both, the particular Temporary Construction Preferential Parking District for which the permit is issued.

B. Temporary Construction Preferential Parking District Permits may be issued only for passenger vehicles, pickup trucks, and vans, and only upon application of a person whose legal address is on a street, or portion thereof, designated as part of a Temporary Construction Preferential Parking District.

C. Up to three (3) Temporary Construction Preferential Parking District Permits may be issued per address. A Temporary Construction Preferential Parking District Permit may be issued to a person whose legal address is on a street, or por-

tion thereof, designated as part of a Temporary Construction Preferential Parking District. Use of a Temporary Construction Preferential Parking District Permit is limited to residents, visitors and providers of services to the applicant or the applicant's residence and is not limited to a particular vehicle. The applicant is responsible for the proper use of the Temporary Construction Preferential Parking District Permit. Temporary Construction Preferential Parking District Permits may not be sold or transferred for monetary consideration to any third party. The sale or transfer of a permit in violation of this Chapter shall be subject to a fine in the amount of one hundred dollars ($100.00), and any misuse of any permit issued under this Section is grounds for revocation of the permit by the City Traffic Engineer pursuant to this Chapter.

D. An application may be submitted by either the owner of the property for which a Temporary Construction Preferential Parking District Permit is sought or the tenants of such property.

E. Any passenger vehicle, pickup truck or van properly displaying valid, unrevoked Temporary Construction Preferential Parking District Permits may be parked on any of the streets, or portions of streets, designated as constituting the Temporary Construction Preferential Parking District for which said permits have been issued without being limited by time restrictions on parking, other than those in effect for purposes of street sweeping or of prohibiting parking or stopping at any time or of prohibiting parking more than seventy-two (72) consecutive hours, set forth in this Title and applicable generally to parking of vehicles. Temporary Construction Preferential Parking District Permits shall not guarantee or reserve to the holder thereof any on-street parking space.

(ORD-12-0017(Emerg.), § 1, 2012)

10.33.060 Violations designated.

A. No person shall falsely represent himself or herself as eligible for Temporary Construction Preferential Parking District Permits or furnish false information in an application therefor to the Office of the City Traffic Engineer.

B. No person shall copy, produce, or otherwise bring into existence a facsimile or counterfeit Temporary Construction Preferential Parking District Permit without written authorization of the City Traffic Engineer.

C. No person shall park or leave standing in a Temporary Construction Preferential Parking District a motor vehicle on which is displayed a facsimile or counterfeit Temporary Construction Preferential Parking District Permit.

D. No person whose Temporary Construction Preferential Parking District Permit has been revoked shall refuse or fail to surrender the Temporary Construction Preferential Parking District Permit to the City Traffic Engineer when requested by the City Traffic Engineer, in writing, to do so.

(ORD-12-0017(Emerg.), § 1, 2012)

CHAPTER 10.34 PARKING FOR HANDICAPPED PERSONS IN PUBLIC PLACES*

10.34.005 Prior designation by action of City Council.

Any parking space designated as reserved for the use of disabled persons by action of the City Council pursuant to Sections 10.34.040 (repealed) or 10.34.050 (repealed) shall be subject to and governed by this Chapter. (Ord. C-7469 § 4, 1997)

10.34.010 Spaces on streets—Designation.

Parking spaces for disabled persons shall be designated by blue paint on the curb or edge of the paved portion of the street adjacent to the space, and by signs or other suitable means as determined by the City Traffic Engineer. Any parking space designated for use by disabled persons may be utilized by any vehicle properly displaying the appropriate license plate or placard as described in this Chapter. (Ord. C-7469 § 1, 1997; Ord. C-5290 § 1 (part), 1977; prior code § 3410.98)

***State law reference**—Provisions on parking spaces for the handicapped, Veh. C. §§ 21458, 22507.5, 22511.7 and 22511.8.

10.34.015 City Traffic Engineer authorized to designate disabled parking on public streets.

The City Traffic Engineer is authorized to designate on-street parking spaces as reserved for disabled persons and to indicate such spaces with blue paint and signs pursuant to Section 10.34.010. Such action must be preceded by a determination of need for such parking spaces and a determination that such designation will not adversely impact traffic safety. The City Traffic Engineer is further authorized to eliminate on-street parking previously designated for use by disabled persons when he or she determines that the need for such parking no longer exists.

The City Traffic Engineer shall maintain a list of all on-street parking spaces designated for use by disabled persons under this Chapter. (Ord. C-7469 § 5, 1997)

10.34.020 Parking for disabled persons reserved for vehicles with appropriate license plates or placards.

No vehicle which does not display either a special identification license plate issued pursuant to California Vehicle Code Section 5007 or a distinguishing placard issued pursuant to California Vehicle Code Sections 22511.55 or 22511.59 shall stop or park in any parking space designated for use by a disabled person. (Ord. C-7469 § 2, 1997; Ord. C-5290 § 1 (part), 1977; prior code § 3410.98.1)

10.34.025 Application for disabled parking designation.

A. Any person who has been issued a special identification license plate pursuant to Vehicle Code, Section 5007 or a distinguishing placard pursuant to Vehicle Code, Sections 22511.55 or 22511.59 may apply to the City Traffic Engineer for the designation of an on-street parking space as a parking space reserved for disabled persons. Such application shall contain:

1. Evidence of authorization from the California Department of Motor Vehicles of authorization to use disabled parking;

2. An explanation of medical need for parking at the requested location;

3. Certification by the applicant that no existing on-street or off-street parking space meets his or her parking needs;

B. When any of the circumstances in the application change or cease to exist, the applicant shall notify the City Traffic Engineer.

C. The City Traffic Engineer is authorized to conduct reviews of eligibility and continuing need for the disabled parking space once every two (2) years. (ORD-09-0021 § 29, 2009; Ord. C-7469 § 6, 1997)

10.34.030 Off-street parking spaces—Designation.

The City Traffic Engineer is authorized to designate spaces in an off-street parking facility owned or operated by the City as reserved for the exclusive use of any vehicle which displays either a special identification license plate issued pursuant to California Vehicle Code Section 5007 or a distinguishing placard issued pursuant to California Vehicle Code Sections 22511.55 or 22511.59. The designation shall be made by posting a sign adjacent to and visible from the space, and marking the space, as specified in California Vehicle Code Section 22511.8.

The City Traffic Engineer is also authorized to place at any off-street parking facility owned or operated by the City a sign not less than seventeen by twenty-two inches (17 x 22") in size with lettering not less than one inch (1") in height which clearly and conspicuously states the following: "Unauthorized vehicles not displaying distinguishing placards or license plates issued for physically handicapped persons will be towed away at owner's expense. Towed vehicles may be reclaimed at [address] or by telephoning the Long Beach Police Department at [telephone number]". Such sign shall be posted in accordance with the provisions of California Vehicle Code Section 22511.8. (Ord. C-7469 § 3, 1997; Ord. C-5290 § 1 (part), 1977; prior code § 3410.99)

10.34.040 Parking at City-owned and operated lots with Disabled Person or DP plate or placard.

A. Any vehicle displaying special license plates issued under California Vehicle Code Section 5007 or a distinguishing placard issued under California Vehicle Code Sections 22511.55 or 22511.59 shall not be required to pay to park at any posted non-gate operated City-owned and City-operated off-street parking facility, as listed below:

1. City Place B Surface
2. Linden
3. Market
4. Pier Point Landing
5. Marina Green
6. Alamitos Beach
7. Belmont Memorial Pier
8. Granada Beach
9. La Verne
10. 54th Place
11. Marine Park (Mother's Beach)
12. Junipero Beach
13. 72nd Place
14. Virginia Village
15. Belmont Shore

B. The provisions of Subsection A shall not permit:

1. Parking in excess of the posted time limits in each parking lot.

2. Overnight parking in beach parking lots as prohibited by Section 10.30.080 of this Code.

3. Parking of certain vehicles as prohibited by Section 10.30.090 of this Code.

C. The provisions of Subsection A shall not apply to parking facilities at the Long Beach Airport.

D. The provisions of Subsection A shall not apply to privately-owned parking facilities. (ORD-20-0027 § 1, 2020)

CHAPTER 10.36 PARKING FOR HANDICAPPED PERSONS IN PRIVATE OFF-STREET FACILITIES

10.36.010 Purpose.

This Chapter is enacted pursuant to authority granted by Section 21107.8 of the California Vehicle Code so as to make effective the provisions of Section 22507.8 of the California Vehicle Code so as to prohibit nonauthorized persons from parking or leaving standing a vehicle in a stall or space designated for physically handicapped persons on privately owned and maintained off-street parking facilities set forth in this Chapter. (Ord. C-5547 § 1 (part), 1979; prior code § 3410.700)

10.36.020 Request for designation required.

The City Council shall not find and declare that any particular privately owned and maintained off-street parking facility within the City is generally held open for use of the public for purposes of vehicle parking, pursuant to authority granted by Section 21107.8 of the California Vehicle Code, except after receipt of a prior written request therefor from the owner or operator of the off-street parking facility and holding a public hearing thereon preceded by ten (10) days' prior written notice of the hearing to the owner and operator of the off-street parking facility. (Ord. C-5547 § 1 (part), 1979; prior code § 3410.701)

10.36.030 Posting of notices and signs.

The owner or operator of an off-street parking facility who has requested the City Council to include the parking facility in Section 10.36.040 shall, within ten (10) days following the effective date of the ordinance that adds the parking facility to Section 10.36.040, post the notices and signs required by California Vehicle Code Sections 21107.8(b), 22507.8(a), respectively. (Ord. C-5641 § 1, 1980; Ord. C-5547 § 1 (part), 1979; prior code § 3410.702)

10.36.040 Facilities enumerated.

The City Council, pursuant to authority granted by Section 21107.8 of the California Vehicle Code and for purposes of having the provisions of Section 22507.8 of the California Vehicle Code apply thereto, finds and declares that the off-street parking facilities described in this Section are privately owned and maintained off-street parking facilities within the City that are generally held open for use of the public for purposes of

vehicular parking: 4101 East Willow Street. (Ord. C-5732 § 3, 1981; Ord. C-5547 § 1 (part), 1979; prior code § 3410.703)

CHAPTER 10.38 MISCELLANEOUS DRIVING RULES

10.38.010 Driving through funeral processions.

No driver of a vehicle shall drive between vehicles comprising a funeral procession while they are in motion and when the vehicles in such procession are conspicuously so designated. (Prior code § 3410.55)

10.38.020 Driving on sidewalks.

No operator of any motorized scooter shall drive the same upon any bike path adjacent to a City marina. (ORD-25-0006 § 2, 2025; Ord. C-7924 § 1, 2004; prior code § 3410.57)

10.38.030 Driving on new pavement.

No person shall ride or drive any animal or any vehicle over or across any newly made pavement or freshly painted marking in any street where a barrier or sign is in place warning persons not to drive over or across such pavement or marking, or when a sign is in place stating that the street, or any portion thereof, is closed. (Prior code § 3410.58)

10.38.040 Use of Ravenna Drive Bridge by commercial vehicles prohibited.

No person shall drive or operate any commercial vehicle in, over, upon or across that portion of

Ravenna Drive between a line forty-five feet (45') north of the north line of Rivo Alto Canal and a line forty-five feet (45') south of the south line of the canal, said portion constituting the Ravenna Drive Bridge over the Rivo Alto Canal and the approaches to the bridge. For the purpose of this Section, a "commercial vehicle" is defined to be a motor vehicle designed, used or maintained primarily for the transportation of property. (Prior code § 3410.59)

10.38.050 Limited access roadway.

No person shall drive a vehicle onto or from any limited access roadway except at such entrances and exits as are established by public authority. (Prior code § 3410.60)

10.38.060 Freeways—Designated.

Those portions of the Long Beach and Terminal Island Freeways within the City shall be deemed to be freeways. Where any such freeway is a State highway, this Title shall be inapplicable, unless the ordinance or resolution affecting the State highway has been presented to and approved in writing by the Department of Public Works. (Prior code § 3410.61)

10.38.070 Freeways—Use restricted.

No person shall drive or operate any bicycle, motor driven cycle or any vehicle which is not drawn by a motor vehicle upon any street established as a freeway, as defined by State law and this Chapter, nor shall any pedestrian walk across, or along any such street so designated and described except in space set aside for the use of pedestrians, provided official signs are in place giving notice of such restrictions. (Prior code § 3410.62)

10.38.080 Walks closed to vehicles.

No operator of any motor vehicle, except a sightseeing tram operating in such public streets or ways pursuant to a permit or franchise granted by the City therefor, shall drive, stand or park such vehicle within or upon the public streets, ways or portions thereof, specified under this Section, between the hours of 11:00 a.m. and 12:00 midnight of each day; provided, however, that the crossing of such portions of such public streets or ways at regular intersections thereof, between such hours, shall not be deemed to be a violation of this Section:

A. Seaside Way, between the easterly line of Chestnut Place and the westerly line of Cedar Walk;

B. The Walk of a Thousand Lights;

C. Cedar Walk. (Ord. C-5436 § 1, 1978; Ord. C-5280 § 1, 1977; prior code § 3410.63)

10.38.090 Streets closed to vehicles.

A. No operator of any motor vehicle, except a sightseeing tram operating in such portion of Seaside Boulevard pursuant to a permit or franchise granted by the City therefor, shall drive, stand, or park such vehicle within or upon that portion of Seaside Boulevard between the westerly line of Magnolia Avenue and the easterly line of the Los Angeles River flood control channel.

B. Maple Way, between Olive Avenue and Alamitos Avenue, is closed to vehicular traffic. No person shall operate any such vehicle upon such thoroughfare.

C. California Avenue, between Bixby Road and Armando Drive, is closed to vehicular traffic Monday through Friday, between the hours of 8:00 a.m. and 7:00 p.m.

D. Repealed.

E. No person shall operate a motor vehicle on First Street between Pacific Avenue and Long Beach Boulevard, between the hours of 6:00 a.m. and 6:00 p.m., except for the following: (1) buses may use this portion of First Street at all times; (2) commercial vehicles specifically serving the businesses located along the south side of First Street between Pine Avenue and the Promenade North may traverse that portion of First Street between Pine Avenue and Long Beach Boulevard between the hours of 6:00 p.m. to 6:00 a.m. and between the hours of 9:00 a.m. to 4:00 p.m.; and (3) any vehicle may drive upon the portion of First Street between Pacific Avenue and Pine Avenue when to

do so is necessary to gain access to any private property vehicularly accessible only from that portion of First Street.

F. No person shall operate a motor vehicle on the Promenade North and the Promenade South between Seaside Way and Third Street, with the following exceptions:

1. Vehicles of three (3) axles or less may traverse and stop upon such right-of-way between the hours of 10:00 p.m. and 9:00 a.m. for the purpose of undertaking commercial loading or unloading activities.

2. Passenger carrying tram vehicles operated by the Long Beach Public Transportation Company may operate upon such right-of-way at any time.

G. First Street and Second Street between Cherry Avenue and Junipero Avenue is closed to through vehicular traffic between the hours of 10:00 p.m. and 5:00 a.m. (ORD-07-0059 § 1, 2007; Ord. C-7816 § 1, 2002; Ord. C-6636 § 1, 1989; Ord. C-6592 § 1, 1989; Ord. C-6543 § 1, 1988; Ord. C-6372 § 1, 1987; Ord. C-6337 § 1, 1987; Ord. C-6190 § 1, 1985; Ord. C-6074 § 1, 1984; Ord. C-5942 § 1, 1983; Ord. C-5809 § 1, 1982; Ord. C-5782 § 2, 1981; prior code § 3410.64)

10.38.100 Seasonal street closures.

A. It is found and determined that the public safety and general welfare require the closing to vehicular traffic of those portions of the public streets in the City enumerated in this Section, and such portions of said public streets are ordered closed each day between the hours of 9:00 a.m. and 5:00 p.m. during Easter vacation week and the periods between June 15 and September 15 of each year. The portions of the streets in the City which are so required to be closed to vehicular traffic as aforesaid are described as follows:

1. Bay Shore Avenue, between a line one hundred ten feet (110') south of the south line of Second Street and southwest line of Fifty-Fourth Place;

2. Fifty-Fourth Place, between the east line of Bay Shore Avenue and the prolongation of the north line east of the first alley north of Ocean Boulevard;

3. Division Street, between the west line of Bay Shore Avenue and a line eighty feet (80') west of said west line;

4. First Street, between the west line of Bay Shore Avenue and a line eighty feet (80') west of said west line.

B. No person, between the hours of 9:00 a.m. and 5:00 p.m. of any day during Easter week and between June 15th and September 15th of each year, shall drive, park or stand any motor vehicle in or upon those portions of the public streets enumerated in Subsection A of this Section.

C. The Chief of Police is authorized, and, as to those signs or barricades required under this Section it shall be his duty, to place and maintain, or cause to be placed and maintained, necessary signs and barricades to close the streets set forth in this Section. (Prior code § 3410.65)

10.38.110 Commercial vehicle parking on residential streets designated as truck routes.

No commercial vehicle exceeding a maximum gross weight of ten thousand (10,000) pounds shall park on any residential street which has been designated as a truck route when appropriate signs have been erected by the City Traffic Engineer giving notice thereof. The provisions of this Section shall have no application to a State highway or while such commercial vehicle is making pick-ups or deliveries of goods, wares and merchandise from or to any building or structure located on such restricted streets, or for the purpose of delivering materials to be used in the actual and bona fide repair, alteration, remodeling or construction of any building or structure on such restricted streets. (Ord. C-6433 § 1, 1987; Ord. C-6246 § 1, 1986: prior code § 3410.66)

10.38.111 Commercial vehicle parking on State highways located in residential areas.

No commercial vehicle exceeding a maximum gross weight of ten thousand (10,000) pounds shall park on any State highway abutted by residential land uses and which has been designated as

a truck route when appropriate signs giving notice thereof and the hours of applicability of such prohibition have been erected by the City Traffic Engineer. The provisions of this Section shall have no application while such commercial vehicle is making pickups or deliveries of goods, wares and merchandise from or to any building or structure located on such State highways, or for the purpose of delivering materials to be used in the actual and bona fide repair, alteration, remodeling or construction of any building or structure on such State highways. If the California Department of Transportation withdraws its approval of this Section by written notice, this Section shall be inoperative six (6) months after receipt of that notice by the City Council. (Ord. C-6722 § 1, 1990)

10.38.120 Reserved.

Editor's note—ORD-26-0022 § 3, adopted Aug. 18, 2026, repealed § 10.38.120, entitled "Use of Queen's Way Bridge restricted," which derived from Prior code § 3410.67.

10.38.130 Exclusive bus lanes.

No person shall operate a motor vehicle, other than a bus, within the areas and during the times specified by this Section, provided that signs or other official traffic-control devices are placed and maintained giving notice thereof; except that other vehicles may be operated in such areas while lawfully executing right turn movements therein or for the purpose of entering or leaving lawfully established parking spaces or loading zones therein:

A. The right-hand lane for southbound traffic on Long Beach Boulevard between First Street and Seventh Street, at all times;

B. The right-hand lane for northbound traffic on Pine Avenue between First Street and a point two hundred fifty feet (250') south of the south curb of Sixth Street, at all times. (Ord. C-5782 § 1, 1981; prior code § 3410.68)

10.38.140 Off-street parking—Exemption from parking fee.

A driver of a vehicle displaying veteran's license plates, as defined in Subsection 10.28.010.G, may park free of charge at any lot owned or operated by the City, subject to restrictions imposed by the State of California. (ORD-07-0003 § 3, 2007)

CHAPTER 10.40 TRUCK ROUTES

10.40.010 Establishment.

A. Whenever any provision of this Title designates and describes any street or portion thereof as a truck route, the Traffic Engineer is authorized to designate such street or streets by appropriate signs.

B. When any such truck route or routes are established and designated by appropriate signs, no operator of a commercial vehicle, as defined in California Vehicle Code Section 260, Subd. (a), exceeding a maximum unladen weight, as that term is defined in California Vehicle Code Sections 660 and 661, of three (3) tons shall operate or park, and no vehicle for hire or advertised for hire shall park, along any other route or routes. This Section shall not apply to pickup trucks as that term is defined in California Vehicle Code Section 471. Nothing in this Section shall prohibit such vehicle from coming from a truck route having ingress and egress by direct route to and from restricted streets when necessary for the purpose of making pickups or deliveries of goods, wares and merchandise from or to any building or structure located on such restricted streets, or the immediate loading and unloading of passengers, or from parking in designated areas such as taxi zones or bus zones, or for the purpose of delivering materials to be used in the actual and bona fide repair, alteration, remodeling or construction of any building or structure upon such restricted streets.

C. The provisions of this Section shall not apply to passenger buses under the jurisdiction of the public utilities commission; or any vehicle owned by a public utility while necessarily in use in the construction, installation or repair of any public utility; or trucks used for the transportation of explosives.

D. Those streets and portions of streets described in Section 10.40.030 are declared to be truck routes for the movement of commercial ve-

hicles exceeding a maximum gross weight of three (3) tons. (ORD-09-0006, § 1, 2009; ORD-07-0042 § 1, 2007; prior code § 3410.116)

10.40.020 Truck routes for transportation of explosives.

In accordance with the provisions of Section 31614 of the California Vehicle Code, no person shall operate any vehicle transporting explosives over any roadway in the City other than those designated by the Traffic Engineer or those for which a special permit has been approved by the Chief of the Fire Department of the City. (Prior code § 3410.118)

10.40.030 Enumerated.

A. For the purpose of Section 10.40.010, the following streets, and portions of streets, are truck routes:

1. Anaheim Street, from the west City limits to the Long Beach Freeway;

2. Bellflower Boulevard, from Pacific Coast Highway to the north City limits at Del Amo Boulevard;

3. Carson Street, from Cherry Avenue to the San Gabriel River, excluding those portions outside the City;

4. Cherry Avenue, from the north City limits to the northerly boundary of the City of Signal Hill, and from the southerly boundary of the City of Signal Hill to Pacific Coast Highway;

5. Lakewood Boulevard, from the north City limits to Los Alamitos Traffic Circle;

6. Long Beach Boulevard, from the north City limits to Ocean Boulevard;

7. Ninth Street, from its westerly terminus to Long Beach Freeway;

8. Norwalk Boulevard, from the north City limits to the south City limits;

9. Pacific Coast Highway, from the west City limits to the east City limits;

10. Paramount Boulevard, from the north City limits to South Street;

11. Santa Fe Avenue, from the Pacific Coast Highway to Ninth Street;

12. Seaside Boulevard, from the west City limits to Ocean Boulevard;

13. Seventh Street from Pacific Coast Highway to the east City limits;

14. South Street, from Cherry Avenue to the east City limits;

15. Spring Street, from Long Beach Boulevard to the westerly boundary of the City of Signal Hill, and from the easterly boundary of the City of Signal Hill to the east City limits;

16. Willow Street, from the west City limits to the Terminal Island Freeway, and from the Long Beach Freeway to the I-405 Freeway;

17. Those roads within the Harbor District specified in Resolution No. HD-946 of the Board of Harbor Commissioners. (Ord. C-7037 § 1, 1992: Ord. C-6527 § 1, 1988; Ord. C-5822 §§ 1, 2, 1982; Ord. C-5806 § 1, 1982; Ord. C-5748 § 2, 1981; Ord. C-5638 § 2 (part), 1980; Ord. C-5546 § 2, 1979; Ord. C-5519 § 1, 1979; Ord. C-5359 § 1, 1977; Ord. C-5268 § 1 (part), 1976; prior code § 3410.125)

CHAPTER 10.41 USE OF STREETS BY OVERWEIGHT VEHICLES*

10.41.010 Definitions.

The following words and phrases, whenever used in this Chapter, shall be construed as defined in this Section:

A. "Designated streets" means those City streets or portions thereof (including streets or portions thereof within the Harbor District) that have been designated by the City Council and the Board of Harbor Commissioners (for streets within the Harbor District) by resolution as being open to travel by overweight vehicles pursuant to a special permit issued under the provisions of this Chapter.

B. "Director" means the Director of Public Works of the City of Long Beach, or his designee.

*__Note__—Prior ordinance history: Ord. C-7177 § 1 (part), 1994; Ord. C-7442 §§ 1, 2, 3, 4, 5, 6, 1996.

C. "Harbor District" means that portion of the City bounded on the north by Anaheim Street, on the east by the Los Angeles Flood Control Channel, on the south by the southerly limits of the City and on the west by the westerly limits of the City.

D. "Overweight vehicle" means a vehicle or combination of vehicles or various intermodal shipping equipment containing cargo of a nature which can be physically separated without affecting the cargo, the weight of which exceeds the maximum allowed by the California Vehicle Code. Ocean shipping equipment under the seal of United States Customs shall not be subject to the provisions of this Chapter.

E. "Person" means any natural person, firm, association, organization, partnership, corporation, public corporation, political subdivision or any department or agency thereof.

F. "Residential street" means a public or private right-of-way or portion thereof providing access to one (1) or more dwellings (as defined in Section 21.15.900 of this Code)

G. "Year" means calendar year commencing January 1 and ending the following December 31.

H. "Intermodal" means a type of international freight system that permits trans-shipping among sea, highway, rail, and air modes of transportation.

I. "Flatrack" means a portable, open-topped, open-sided unit that fits into existing intermodal container cells and provides the capability for container ships to carry oversized cargo. (ORD-10-0025, § 1, 2010; Ord. C-7850 § 1, 2003)

10.41.020 Special permit required.

No person shall operate or move an overweight vehicle upon City streets (including streets within the Harbor District) except pursuant to a special permit issued under the provisions of this Chapter. A special permit shall be required for each overweight vehicle to be moved or operated on City streets. (Ord. C-7850 § 1, 2003)

10.41.030 Designated streets.

A special permit will be issued for operation or movement of an overweight vehicle only upon streets and highways designated by the City Council and the Board of Harbor Commissioners (for streets within the Harbor District) by resolution. The Board of Harbor Commissioners may impose special conditions regarding the use of streets and highways within the Harbor District by an overweight vehicle when designating a street and highway within the Harbor District pursuant to this Section or at any time thereafter the Board of Harbor Commissioners shall determine that special conditions are necessary to assure against undue damage to road foundations, surfaces, bridges or other structures. (Ord. C-7850 § 1, 2003)

10.41.040 Authority to issue special permit.

The Director or his designee is authorized to issue special permits under this Chapter for either a single movement or on a yearly basis for continuous operations. Every permit issued for continuous operations shall expire on December 31 of the year for which issued. The Director may issue or withhold a special permit in his or her discretion or may issue a special permit conditioned upon any or all of the following:

A. The number of trips authorized.

B. Seasonal or other time limitations within which the overweight vehicle may be operated on the designated streets.

C. An undertaking or other security as may be deemed necessary to protect the City's streets and bridges from damage.

D. Required proof of financial responsibility in an amount required for compliance with California Vehicle Code Section 16500.5.

E. Such conditions of operation of the overweight vehicle as may be necessary to assure against undue damage to the road foundations, surfaces, bridges or other structures.

F. Potential negative safety or environmental impacts in the opinion of the City Traffic Engineer, Fire Marshall, or the Chief of Police. (ORD-10-0025, § 2, 2010; Ord. C-7850 § 1, 2003)

10.41.050 Application required.

A special permit will be issued only upon receipt of a signed and verified application describ-

ing the vehicle and load, including weight, and stating whether the special permit is requested for a single trip or for continuous operations. Each application shall be accompanied with a fee as determined by the Director and approved by the City Council. (Ord. C-7850 § 1, 2003)

10.41.060 Special permit conditions.

Every special permit issued pursuant to this Chapter shall provide the following:

A. The maximum allowable gross combined vehicle weight to be permitted may not exceed the maximum allowed by the California Vehicle Code with appropriate equipment.

B. Special permits shall be issued for the movement of intermodal shipping equipment only.

C. Each person to whom a special permit is issued shall agree to defend and indemnify City, its boards, officers and employees from any and all damages, costs and expenses sustained or incurred by City, its boards, officers and employees resulting from or arising out of the issuance of a special permit and the use of City streets whether designated or nondesignated. Each such person shall further agree to be responsible for all injuries or death of persons and for all damages to property of every kind caused by or resulting from or arising out of this issuance of a special permit and the use of City streets, whether designated or nondesignated.

D. No detour from a permitted route may be made without prior permission of the Director or his designee. No route (whether permitted or detour) shall be on residential streets. Nothing contained in this Chapter shall prohibit an overweight vehicle for which a special permit has been issued from operating or moving upon a nondesignated street to a designated street by the most direct route when necessary for the purpose of picking up or delivering an ocean shipping container.

E. Every overweight vehicle permitted under this Chapter and each special permit issued pursuant hereto shall be subject to inspection by the Director or his designee and any peace officer at any time it is on a City street within the limits of the City for the purpose of determining compliance with the provisions of the special permit.

F. As a condition precedent to the issuance of a special permit, the applicant shall furnish the Director evidence that each driver of an overweight vehicle shall have completed training in the operation of an overweight vehicle.

G. The person to whom a special permit is issued shall furnish evidence satisfactory to the Director that the overweight vehicle has undergone a safety inspection by a governmental agency having jurisdiction within ninety (90) days preceding the issuance of the special permit and at least once each ninety (90) days during the permit period.

H. Each person to whom a special permit is issued shall at all times comply with all laws, ordinances, rules and regulations of all federal, State and local governmental authorities having jurisdiction over the operation and maintenance of the overweight vehicle. (ORD-10-0025, § 3, 2010; Ord. C-7850 § 1, 2003)

10.41.070 Revocation of permit.

The Director shall revoke all continuous operation special permits issued to a person, if the person, his employee or agent shall violate any two (2) special permit conditions or violate the same special permit condition on two (2) occasions within any ninety (90) day period. No special permit shall be issued to a person whose special permit has been revoked pursuant to this Section for ninety (90) days following such revocation. Nothing contained in this Chapter shall be deemed or construed as limiting the power of a peace officer to issue a citation for or otherwise enforce violations of law with respect to operation of an overweight vehicle upon designated City streets upon discovery of a violation of a condition of a special permit. (Ord. C-7850 § 1, 2003)

10.41.080 Rules and regulations.

The Director or his designee may adopt, repeal, amend and modify administrative regulations implementing the provisions of this Chapter,

including, but not limited to, operating requirements, trailer requirements, driver requirements, and any other matter deemed necessary for the effective administration of this Chapter. (ORD-10-0025, § 4, 2010; Ord. C-7850 § 1, 2003)

10.41.090 Display and special permit.

No overweight vehicle shall be operated or moved upon designated streets without displaying a placard approved by the Director identifying the overweight vehicle as one for which a special permit has been issued pursuant to this Chapter. A copy of the special permit shall at all times be kept in the overweight vehicle and shall be presented to any peace officer upon demand. (Ord. C-7850 § 1, 2003)

10.41.100 Other permits.

A special permit issued pursuant to this Chapter shall be in addition to and obtained prior to applying for any other permit which may be required by law for the operation or movement of an overweight vehicle upon public streets. (Ord. C-7850 § 1, 2003)

CHAPTER 10.42 DRIVING ON FLOOD CONTROL STRUCTURES

10.42.010 Driving on flood control structures prohibited.

No person shall drive or permit to be driven any motor vehicle into or upon any levee, flood control channel or other right-of-way within the City which is owned, operated or under the control of either the Los Angeles County Flood Control District or the Corps of Engineers of the United States Army. (Prior code § 3410.6(a))

10.42.020 Exemption.

This Chapter shall not apply to the vehicles owned or in the service of the Corps of Engineers of the United States Army, the County Flood Control District or those of any duly constituted law enforcement agency. Further, it shall not apply to any vehicle operated under specific written authorization of the Corps of Engineers of the United States Army, the County Flood Control District or the City. (Prior code § 3410.6(b))

10.42.030 Highways excluded.

This Chapter shall not apply to the driving or operating of a motor vehicle on the main traveled portion of any public highway. (Prior code § 3410.6(c))

CHAPTER 10.44 WHITE CANES*

10.44.010 Use restricted.

No person, except persons wholly or partially blind, shall carry or use on the public streets of the City any canes or walking sticks which are white in color, or white with red end or bottom. Such canes or walking sticks may be used on the streets and other public places of the City by persons wholly or partially blind as a means of protecting them and for the purpose of identifying them by drivers of vehicles, operators of motor driven vehicles and other pedestrians with whom they come in contact on such streets and public places. (Prior code § 3460)

10.44.020 Duties of drivers and pedestrians.

Any driver of a vehicle, operator of a motor driven vehicle, or pedestrian who is not wholly or partially blind who approaches or comes in contact with a person wholly or partially blind carrying a cane or walking stick white in color, or white with red end, shall immediately come to a full stop and take such precautions before proceeding as may be necessary to avoid accident or injury to the person so carrying a white cane or walking stick. (Prior code § 3460.1)

CHAPTER 10.46 ABANDONED VEHICLES†

10.46.010 Declared nuisance.

In addition to and in accordance with the determination made and the authority granted by

*__State law reference__—Provisions on the use of white canes, Veh. C. § 21963 et seq.

†__State law reference__—Provisions on local ordinances on abandoned vehicles, Veh. C. § 22660.

the State under Section 22660 of the California Vehicle Code to remove abandoned, wrecked, dismantled or inoperative vehicles or parts thereof as public nuisances, the City Council makes the following findings and declarations:

The accumulation and storage of abandoned, wrecked, dismantled or inoperative vehicles or parts thereof on private or public property, not including highways, is found to create a condition tending to reduce the value of private property, to promote blight and deterioration, to invite plundering, to create fire hazards, to constitute an attractive nuisance, creating a hazard to the health and safety of minors, to create a harborage for rodents and insects and to be injurious to the health, safety and general welfare. Therefore, the presence of an abandoned, wrecked, dismantled or inoperative vehicle, or parts thereof, on private or public property, not including highways, except as expressly permitted in this Chapter, is declared to constitute a public nuisance which may be abated as such in accordance with the provisions of this Chapter. (Prior code § 3410.300)

10.46.020 Definitions.

The following words and phrases, when used in this Chapter, shall for the purpose of this Chapter have the meanings respectively ascribed to them in this Chapter, as follows:

A. "Highway" means away or place of whatever nature, publicly maintained and open to the use of the public for purposes of vehicular travel. Highway includes street.

B. "Owner of the land" means the owner of the land on which the vehicle, or parts thereof, is located, as shown on the last equalized assessment roll.

C. "Owner of the vehicle" means the last registered owner and legal owner of record.

D. "Public property" does not include "highway".

E. "Vehicle" means a device by which any person or property may be propelled, moved, or drawn upon a highway, except a device moved by human power or used exclusively upon stationary rails or tracks. (Prior code § 3410.301)

10.46.030 Exemptions.

This Chapter shall not apply to:

A. A vehicle, or parts thereof, which is completely enclosed within a building in a lawful manner where it is not visible from the street or private property; or

B. A vehicle, or parts thereof, which is stored or parked in a lawful manner on private property in connection with the business of a licensed dismantler, licensed vehicle dealer, a junk dealer, or when such storage or parking is necessary to the operation of a lawfully conducted business or commercial enterprise.

Nothing in this Section shall authorize the maintenance of a public or private nuisance as defined under provisions of law other than Chapter 10 (commencing with Section 22650) of Division 11 of the California Vehicle Code and this Chapter. (Prior code § 3410.302)

10.46.040 Regulations nonexclusive.

This Chapter is not the exclusive regulation of abandoned, wrecked, dismantled or inoperative vehicles within the City. It shall supplement and be in addition to the other regulatory codes, statutes, and ordinances heretofore or hereafter enacted by the City, the State or any other legal entity or agency having jurisdiction. (Prior code § 3410.303)

10.46.050 Administration and enforcement.

Except as otherwise provided in this Chapter, the provisions of this Chapter may be administered and enforced by the Building Official, the Director of Public Works or any other City official designated by the City Manager. In the enforcement of this Chapter, such official and his deputies may enter upon private or public property to examine a vehicle or parts thereof, or obtain information as to the identity of a vehicle and to remove or cause the removal of a vehicle or parts thereof declared to be a nuisance pursuant to this Chapter. (Ord. C-6114 § 1 (part), 1984; prior code § 3410.304)

10.46.060 Towing contractor authority.

When the City has contracted with or granted a franchise for vehicle towing services, such person

or persons shall be authorized under direction of the designated official to enter upon private or public property and remove or cause the removal of a vehicle or parts thereof declared to be a nuisance pursuant to this Chapter. (Ord. C-6114 § 1, (part), 1984; prior code § 3410.305)

10.46.070 Removal—Required.

Upon discovering the existence of an abandoned, wrecked, dismantled or inoperative vehicle, or parts thereof, on private or public property within the City, the designated official shall have the authority to cause the abatement and removal thereof in accordance with the procedure prescribed in this Chapter. (Ord. C-6114 § 1 (part), 1984; prior code § 3410.306)

10.46.080 Removal—Notice to property and vehicle owner.

A ten (10) day notice of intention to abate and remove the vehicle, or parts thereof, as a public nuisance shall be posted on the vehicle or property mailed by certified mail to the owner of the land as shown on the latest equalized assessment roll and mailed by certified mall to the owner of the vehicle, unless the vehicle is in such condition that identification numbers are not available to determine ownership. If the owner of the property, vehicle or parts thereof is not of record, posting the vehicle or property shall suffice. The notices of intention shall be in substantially the following forms:

NOTICE OF INTENTION TO ABATE AND REMOVE AN ABANDONED, WRECKED, DISMANTLED, OR INOPERATIVE VEHICLE OR PARTS THEREOF AS A PUBLIC NUISANCE

(Name and address of owner of the land)

As owner shown on the latest equalized assessment roll of the land located at (address), you are notified that the undersigned, pursuant to Chapter 10.46 of the Long Beach Municipal Code, has determined that there exists upon this land an (or parts of an) abandoned, wrecked, dismantled or inoperative vehicle registered to _____, license number _____, which constitutes a public nuisance pursuant to the provisions of Chapter 10.46 of the Long Beach Municipal Code.

You are notified to abate this nuisance by the removal of this vehicle (or parts of a vehicle) within ten (10) days from the date of mailing of this notice. If you fail to do so, the vehicle will be removed by the City of Long Beach with the costs becoming a lien upon your property.

As owner of the land on which this vehicle (or parts of a vehicle) is located, you are notified that you may, within ten (10) days after the date of mailing of this Notice of Intention, request a public hearing. If such a request is not received by the designated official within such ten (10) day period, the designated official shall have the authority to abate and remove the vehicle (or parts of a vehicle) as a public nuisance without a public hearing. You may appear in person at any hearing requested by you or the owner of the vehicle, or, in lieu of appearing, may present a sworn written statement, provided it is received in time for consideration at the hearing, setting forth the reasons why the nuisance should not be abated by removal of the vehicle.

Notice Mailed: _____/_____

Date Signature— Designated Official

NOTICE OF INTENTION TO ABATE AND REMOVE AN ABANDONED, WRECKED, DISMANTLED, OR INOPERATIVE VEHICLE OR PARTS THEREOF AS A PUBLIC NUISANCE

(Name and address of last registered and/or legal owner of record of vehicle-notice should be given to both if different)

As the last registered (and/or legal) owner of record of (description of vehicle-make, license, etc.), you are notified that the undersigned pursuant to Chapter 10.46 of the Long Beach Municipal Code has determined that the vehicle (or parts of a vehicle) exists as an abandoned, wrecked, dismantled or inoperative vehicle at (described location on public or private property) and consti-

tutes a public nuisance pursuant to the provisions of Chapter 10.46 of the Long Beach Municipal Code.

You are notified to abate the nuisance by the removal of this vehicle (or parts of a vehicle) within ten (10) days from the date of mailing of this notice.

As registered (and/or legal) owner of record of this vehicle (or parts of a vehicle), you are notified that you may, within ten (10) days after the date of mailing of this Notice of Intention, request a public hearing. If such a request is not received by the designated official within such ten (10) day period, the designated official shall have the authority to abate and remove or cause the removal of the vehicle (or parts of a vehicle) as a public nuisance without a hearing.

Notice Mailed: _____/_____

Date — Signature— Designated Official

(Ord. C-6606 § 1, 1989; Ord. C-6114 § 1 (part), 1984; prior code § 3410.307)

10.46.090 Removal—Hearing.

A. Upon a timely request by the owner of the vehicle or owner of the land, a public hearing shall be held by the Board of Examiners, Appeals and Condemnation on the question of abatement and removal of the vehicle or parts thereof as an abandoned, wrecked, dismantled or inoperative vehicle. The designated official shall mail a notice of the hearing by certified mail, at least ten (10) days before the hearing to the owner of the land and to the owner of the vehicle, unless the vehicle is in such condition that identification numbers are not available to determine ownership.

B. If such a request for hearing is not received within said ten (10) days after the date of mailing of the notice of intention to abate and remove, the City shall have the authority to abate and remove or cause the removal of the vehicle or parts thereof as a public nuisance without holding a public hearing.

C. All hearings under this Chapter shall be held before the Board of Examiners, Appeals and Condemnation which shall hear all facts and testimony it deems pertinent. Said facts and testimony may include testimony on the condition of the vehicle or parts thereof and the circumstances concerning its location on the private or public property. The Board shall not be limited by the technical rules of evidence. The owner of the land and the owner of the vehicle may appear in person at the hearing or submit a sworn written statement in time for consideration at the hearing on the question of abatement and removal of the vehicle or parts thereof as an abandoned, wrecked, dismantled or inoperative vehicle.

D. The Board of Examiners, Appeals and Condemnation may impose such conditions and take such other action as it deems appropriate under the circumstances to carry out the purpose of this Chapter. It may delay the time for removal of the vehicle or parts thereof if, in its opinion, the circumstances justify it. At the conclusion of the public hearing, the Board of Examiners, Appeals and Condemnation may find that a vehicle or parts thereof have been abandoned, wrecked, dismantled, or is inoperative on private or public property and order the same removed from the property as a public nuisance and disposed of as provided in this Chapter. The order requiring removal shall include a description of the vehicle or parts thereof and the correct identification number and license number of the vehicle, if available, at the site. The decision of the Board of Examiners, Appeals and Condemnation shall be final.

E. If the owner of the land or the vehicle does not appear at the hearing, or if an interested party makes a written presentation to the Board but does not appear, he shall be notified in writing of the decision. (Ord. C-7098 § 10, 1993; Ord. C-6114 § 1 (part), 1984; prior code § 3410.308)

10.46.100 Removal—Authorized when.

Five (5) days after adoption of the order declaring the vehicle or parts thereof to be a public nuisance or five (5) days from the date of mailing of notice of the decision, if such notice is required by this Chapter, the vehicle or parts thereof may be disposed of by removal to a scrapyard or auto-

mobile dismantler's yard. (ORD-16-0028 § 4, 2016; Prior code § 3410.309)

10.46.110 Removal—Notice to State.

Within five (5) days after the date of removal of the vehicle or parts thereof, notice shall be given to the Department of Motor Vehicles identifying the vehicle or parts thereof removed. At the same time there shall be transmitted to the Department of Motor Vehicles any evidence of registration available, including registration certificates, certificates of title and license plates. (Prior code § 3410.310)

10.46.120 City removal—Authorized.

If any owner served with a notice to remove a vehicle fails to remove the vehicle from his lot within the time stated in the notice, or order of the Board of Examiners, Appeals and Condemnation after appeal, he shall be deemed to have consented to such removal by the Building Official who shall then be authorized, and it shall be his duty, to enter upon the lot involved and remove the vehicle. (Ord. C-6606 § 2 (part), 1989)

10.46.121 Owner's responsibility for enforcement costs.

If any owner served with a notice to remove a vehicle fails to remove the vehicle from his lot within the time stated in the notice, or order of the Board of Examiners, Appeals and Condemnation after appeal, all incidental enforcement costs incurred by the City in connection therewith shall be charged to and become an indebtedness of the owner of the land as well as a lien upon the affected property whether or not the vehicle is later removed by the City, the owner or by others, except as provided below. "Incidental enforcement costs" include, but are not limited to, the actual expenses and costs of the City in investigating the property, obtaining title information, preparing notices, and performing inspections. Incidental enforcement costs shall not be charged to, nor become an indebtedness of, a property owner who is head of a low-income household (defined to be a household earning less than eighty percent (80%) of the County median income). (Ord. C-7098 § 18, 1993)

10.46.130 City removal of vehicle—Levy computation.

The Building Official shall, after completing the removal of a vehicle from any lot or whenever the work was accomplished by the owner after the established deadline, compute all expenses so incurred by the City in connection with the removal, including the applicable processing fees as set forth by City Council resolution and all incidental enforcement costs. All expenses shall be charged to and become an indebtedness of the owner of such premises, except that incidental enforcement costs shall not be included in the levy for a property owned by a head of a low-income household (defined to be a household earning less than eighty percent (80%) of the County median income). (Ord. C-7098 § 11, 1993; Ord. C-6606 § 2 (part), 1989)

10.46.140 City removal of vehicle—Payment notice.

Upon computing the expenses, the Building Official shall serve upon the owner of the property, as determined from the current assessment roll, and in the same manner as provided for service of the notice to remove vehicle, a notice to pay vehicle removal levy (sometimes referred to in this Chapter as notice to pay), which notice shall be in substantially the following form:

NOTICE TO PAY VEHICLE REMOVAL LEVY

In accordance with the provisions of Chapter 10.46 of the Long Beach Municipal Code, the Building Official has caused the abandoned, wrecked, dismantled or inoperative vehicle registered to _____ and having license number _____ located on property at _____

_____

_____
(legal)
AKA_____
(address)

To be removed at City expense.

You are notified that the total costs of _____ are now due and payable to the City of Long Beach.

Section 10.46.150 of the Long Beach Municipal Code provides, in part, that the property owner or any person having an interest in the matter may demand a hearing within fifteen (15) days of this notice before the Board of Examiners, Appeals and Condemnation on the reasonableness of the charges. Such demand shall be in writing, flied with the Building Official and shall describe the property involved, the reasons for objecting, the name, address and interest of the applicant.

If no hearing is demanded, this payment shall become delinquent thirty (30) days from this notice and a lien for that amount, plus a fee for preparation of the lien shall be attached to the affected property and thereafter bear interest at the rate of twelve percent (12%) per annum until paid. An additional fee will be incurred if that payment is not received before the end of the fiscal year (June 30th) and transfer of collection to the Tax Collector becomes necessary. (Ord. C-6606 § 2 (part), 1989)

10.46.150 Hearing on charges.

A. Within fifteen (15) days from the date of the notice to pay, the property owner, or any person having an interest in the matter may demand a hearing on the reasonableness of such charges. The demand shall be in writing and filed with the Building Official. It shall describe the property involved, the reasons for objecting, and the address of the applicant for service of notices in connection with such hearing.

B. The Building Official shall set a date for hearing such protest by the Board of Examiners, Appeals and Condemnation within a reasonable time. The Building Official shall send written notice of such hearing to the person whose name appears on the current equalized assessment roll as the owner of the premises involved. Such service may be made either by personal delivery of the notice or by depositing it in the United States mail, postage prepaid, as certified, first class mail, return receipt requested, addressed to the owner at the most recent address appearing on the assessment roll, or if no address appears on the roll, such service may be made by posting the notice in a conspicuous place upon the property. Proof of the service of the notice shall be made by affidavit of the person making the service, and the affidavit shall be sufficient for all purposes.

C. At the time set for such hearing, the Board shall hear all evidence pertinent to the reasonableness of such charges and shall then either confirm or modify the charges. The decision of the Board shall be final.

D. A copy of the Board′s determination shall be served by mail upon the owner of the affected premises. Service shall be completed at the time of its deposit in a receptacle maintained by the United States Postal Service, with postage fully prepaid. (Ord. C-6606 § 2 (part), 1989)

10.46.160 Interest on charges.

If the amount of the charges as determined by the Board of Examiners, Appeals and Condemnation has not been paid within thirty (30) days of its decision, the payment shall become delinquent and a lien against the real property, and the amount so determined shall thereafter bear interest at the rate of twelve percent (12%) per annum until paid. If no hearing is demanded on the reasonableness of the charges, the payment shall become delinquent and a lien against the real property thirty (30) days after the notice of the charge for abatement is served by the Building Official; and such amount shall thereafter bear interest at the rate of twelve percent (12%) per annum until paid. (Ord. C-6606 § 2 (part), 1989)

10.46.170 Transfer of collection.

The Building Official shall certify a list of all delinquent charges for vehicle removal or nuisance abatement to the City Treasurer who shall submit the list to the City Council for confirmation. Each

parcel of property shall be described sufficiently to identify it in accordance with the records of the County Tax Collector. The amount of the charges including such interest as has accrued after the delinquent date to July 1st of the year shall be set forth opposite the description by the City Treasurer. (Ord. C-6606 § 2 (part), 1989)

10.46.180 Method of collection.

Upon receipt of the list, the County Tax Collector shall enter the charges shown thereon for each parcel of property upon the current tax roll and shall proceed to collect the charges in the same manner as ad valorem taxes, and penalties and interest for nonpayment thereafter shall attach as though the amounts were ad valorem taxes; provided, however, that no receipt for payment of ad valorem taxes appearing upon the tax roll as against a particular parcel shall be issued unless all such charges for collection for lot cleaning, vehicle removal, correction of substandard conditions or nuisance abatement, and penalties thereon, entered upon that tax roll against the lot are first paid in full. (Ord. C-6606 § 2 (part), 1989)

10.46.190 Tax—Sold property.

Upon the sale of any lot to the State for nonpayment of taxes, all charges for lot cleaning, vehicle removal, correction of substandard conditions or nuisance abatement for the parcel appearing upon the tax roll, together with the penalties thereon, shall be added to and become a part of the same delinquent tax record. (Ord. C-6606 § 2 (part), 1989)

10.46.200 Tax—Sold property—Redemptions.

No certificate of redemption from sale for delinquent taxes shall be issued until all charges for lot cleaning, vehicle removal, correction of substandard conditions and nuisance abatement, and penalties entered on the delinquent tax records against the property involved, have first been paid in full. (Ord. C-6606 § 2 (part), 1989)

10.46.210 Error correction—Assessment cancellation.

A. The Building Official may, prior to certifying any unpaid charges to the City Treasurer, correct any errors with respect to such levies appearing upon his records.

B. After such levies have been certified to the City Treasurer and confirmed by the City Council, the Council, by order entered on its minutes, may cancel any charges for lot cleaning, vehicle removal, correction of substandard conditions or nuisance abatement, or penalty, or any portion of such charges or penalty appearing on the tax records, which, because of error, is charged against the wrong property, or which has been paid but such payment has not been recorded upon the tax records, or which is based upon a clerical error in such records, or which was charged against property acquired subsequent to the lien date by the United States, by the State, or any City, or any school district or other political subdivision and, because of this public ownership, not subject to sale for delinquent assessment. (Ord. C-6606 § 2 (part), 1989)

CHAPTER 10.48 BICYCLES*

10.48.010 Bicycle defined.

A. A bicycle is every device propelled by human power which any person may ride, having two (2) tandem wheels either of which is twenty inches (20") or more in diameter.

B. The term "bicycle" also includes all classes of electric bicycle or "e-bike" defined in California Vehicle Code section 312.5. (ORD-26-0022 § 1, 2026; Prior code § 3410.200)

10.48.020 Traffic laws applicable.

Every person riding a bicycle upon a roadway or sidewalk shall be subject to the provisions of this Title applicable to the driver of a vehicle, except as to provisions which by their nature can have no application, and such person shall also comply with the special bicycle regulations contained in the Chapter. (Prior code § 3410.201)

10.48.030 Emerging from alley, driveway or building.

The operator of a bicycle emerging from an alley, driveway or building shall, upon approach-

***State law reference**—Provisions on bicycles, Veh. C. § 21200 et seq.

ing a sidewalk or the sidewalk area extending across any alleyway, yield the right-of-way to all pedestrians approaching on the sidewalk or sidewalk area, and upon entering the roadway shall yield the right-of-way to all vehicles approaching on the roadway. (Prior code § 3410.202)

10.48.040 Riding in a group.

Persons operating bicycles upon a roadway shall not ride more than two (2) abreast, except on paths or parts of roadways set aside for the exclusive use of bicycles. (Prior code § 3410.203)

10.48.050 Parking.

No person shall park a bicycle upon a street other than upon the roadway against the curb or upon a sidewalk in a rack to support the bicycle or against a building or at the curb in such manner as to afford the least obstruction to pedestrian traffic. (Prior code § 3410.204)

10.48.060 Path use.

Whenever a usable path for bicycles has been provided adjacent to a roadway, bicycle riders shall use such path and shall not use the roadway. Notwithstanding the foregoing, no person other than an authorized City employee or representative shall use, or enter upon, that portion of the Mark Bixby Memorial Bicycle-Pedestrian Path located within the Harbor District, including its Ocean Boulevard, Pico Boulevard and Terminal Island approaches between the hours of 9:00 p.m. and 5:00 a.m. Moreover, in addition to the prohibitions set forth in Chapters 10.51.030, 10.52.040 and 10.54.040, the use of scooters on the Mark Bixby Memorial Bicycle-Pedestrian Path is prohibited at all times. (ORD-23-0016 § 1, 2023; Prior code § 3410.205)

10.48.070 Riding on sidewalks.

A. No person shall ride a bicycle upon a sidewalk within any business district; upon the sidewalks of bridges; in pedestrian underpasses; on pedestrian overpasses; upon sidewalks adjacent to any school building, church, recreation center, playground, or senior citizens' residential development; within the area south of Ocean Boulevard between the Long Beach Museum of Art on the west and Bluff Park on the east; on the northerly side of the Downtown Marina mole which directly abuts said marina, between Gangway A and Gangway P.

B. No person shall ride a Class 3 electric bicycle upon any sidewalk.

C. Any person riding a bicycle upon a sidewalk shall yield the right-of-way to any pedestrian, and when overtaking and passing a pedestrian, shall give an audible signal and shall pass to the left of the pedestrian only under conditions permitting such movement in safety.

D. The speed limit for bicycles on a sidewalk is fifteen (15) miles per hour unless otherwise posted. The speed limit where pedestrians are present is five (5) miles per hour. Signs specifying the speed limit shall be placed by the Traffic Engineer in locations which will provide notice to significant concentrations of sidewalk bicycle riders or where bicycle speed problems are found to exist on sidewalks.

E. For the purpose of this Section, the following public ways shall be considered sidewalks:

1. Seaside Walk south of Ocean Boulevard between Fifty-Fifth Place and Sixty-Ninth Place, known as the Boardwalk;

2. Bay Shore Walk north of Ocean Boulevard between Fifty-Fifth Place and Sixty-Ninth Place.

F. This Section shall not apply to a bicycle operated by any officer employed by the City while acting within the course and scope of his or her employment, having peace officer powers pursuant to Penal Code Section 830 or are employed in positions as provided under Sections 16.16.080, 16.08.340 and 16.08.341 of the Long Beach Municipal Code. (ORD-26-0022 § 2, 2026; Ord. C-7453 § 1, 1997; Ord. C-7210 § 1, 1994: Ord. C-7204 § 1, 1994; Ord. C-7084 § 1, 1993: Ord. C-6883 § 1, 1991; Ord. C-6322 § 1, 1986; Ord. C-5911 § 1, 1982; Ord. C-5678 § 1, 1981; prior code § 3410.206)

10.48.080 Signaling device required.

No person shall operate a bicycle upon a sidewalk unless it is equipped with a bell, horn or other device capable of giving a signal audible for a distance of at least one hundred feet (100'), except that a bicycle shall not be equipped with, nor shall any person use upon a bicycle, any siren or whistle. (Ord. C-6322 § 2, 1986)

10.48.090 Penalty.

Violation of any provision of this Chapter is an infraction punishable by a fine not to exceed one hundred dollars ($100.00). (Ord. C-6322 § 3, 1986)

10.48.100 Signs.

Whenever any provision of this Chapter prohibits the riding of bicycles, the Traffic Engineer shall have the authority to erect and maintain signs giving notice thereof in the area where such prohibition is in effect. (Ord. C-6883 § 2, 1991)

10.48.110 Repealed.

Editor's note—ORD-26-0022 § 4, adopted Aug. 18, 2026, repealed § 10.48.110, which pertained to "prohibited areas" for bicycle riding and derived from Ord. C-7281 § 3, 1994.

CHAPTER 10.49 PROHIBITION ON REPAIRS AND SALES OF BICYCLES AND BICYCLE PARTS ON PUBLIC PROPERTY

10.49.010 Repairs and sales on public property prohibited.

Except where otherwise stated in this Chapter, no person shall assemble, disassemble, sell, offer to sell, distribute, offer to distribute, or store the following items on any street, sidewalk, alley, public passageway, public right-of-way, public beach, public park, or other public property within the City:

A. Three (3) or more bicycles;

B. A bicycle frame with the gear cables or brake cables cut;

C. Two (2) or more bicycles with missing parts (the term "parts" shall mean handlebars, wheels, forks, pedals, cranks, seats, or chains); or

D. Five (5) or more bicycle parts. (ORD-18-0027 § 1, 2018)

10.49.020 Exceptions.

The prohibition contained in Section 10.49.010 of this Chapter shall not apply in any of the following situations:

A. An individual is operating under a valid City of Long Beach License or Permit authorizing such activities.

B. The owner of a bicycle or bicycle part is present during the repair of his or her single bicycle or bicycle part. Supporting evidence for a claim of lawful ownership may include, but is not limited to, video or photographic evidence, a bill of sale, the correct serial number, bicycle registration, and the like. (ORD-18-0027 § 1, 2018)

10.49.030 Severability.

If any section, subsection, sentence, clause, phrase, or word of this Chapter 10.49, or any application thereof to any person or circumstance, is held to be invalid or unconstitutional by a decision of a court of competent jurisdiction, the validity, legality and enforceability of the remaining provisions shall not in any way be affected or impaired thereby and such provision shall be ineffective only to the extent of such invalidity, illegality or unenforceability. (ORD-18-0027 § 1, 2018)

CHAPTER 10.50 BICYCLE REGISTRATION*

10.50.010 Definitions.

"Bicycle" means and includes any device upon which a person may ride which is propelled by human power through a system of belts, chains, or gears and which has wheels at least twenty inches (20") in diameter and a frame size of at least

***Editor's note—**ORD-11-0007, § 1, adopted Feb. 15, 2011, amended Ch. 10.50, in its entirety to read as herein set out. Former Ch. 10.50, §§ 10.50.010—10.50.110, was entitled "Bicycle Registration", and derived from: Prior Code, §§ 6100.230—6100.240; ORD-06-0039, § 3, 2006; and ORD-10-0014, §§ 17, 18, 2010.

State law reference—Provisions on the regulation of bicycles by local authorities, Veh. C. § 21206.

fourteen inches (14"). (ORD-11-0007, § 1, 2011)

10.50.020 Destruction or alteration prohibited.

No person shall willfully or maliciously remove, destroy, mutilate or alter the serial number on any bicycle, except in the event that the bicycle is dismantled and no longer operated upon any streets in this City; provided, however, that nothing in this Section shall prohibit the Police or Fire Chief from numbering frames or bicycles on which no serial number is legible or which serial number is insufficient for identification purposes. (ORD-11-0007, § 1, 2011)

10.50.030 Dealer reports.

Every person engaged in the business of buying, trading or selling secondhand bicycles shall daily make a written report to the Chief of Police, upon forms provided for that purpose by the Police Department, of every bicycle purchased, traded or sold by such dealer during the past twenty-four (24) hours, giving the name and address of the person from whom purchased or traded, or to whom sold, a description of such bicycle by name and make, and the frame number thereof. (ORD-11-0007, § 1, 2011)

10.50.040 Enforcement.

The Chief of Police and his or her representatives and the licensing agency are granted all authority to enforce and carry out the provisions of this Chapter pursuant to the provisions included in the California Vehicle Code and all other laws of the State. (ORD-11-0007, § 1, 2011)

CHAPTER 10.51 ELECTRICALLY MOTORIZED BOARDS

10.51.010 Definition.

"Electrically motorized board" ("EMB") shall mean any wheeled device that has a floorboard designed to be stood upon when riding that is not greater than 60 inches (60") deep and 18 inches (18") wide, is designed to transport only one (1) person and has an electric propulsion system averaging less than one thousand (1,000) watts, the maximum speed of which, when powered solely by a propulsion system on a paved level surface, is no more than twenty (20) miles per hour. The device may be designed to also be powered by human propulsion. For the purposes of this Chapter, EMBs shall not include "electric personal assistive mobility devices" defined as self-balancing, two (2) non-tandem wheeled devices designed to transport one (1) person by means of an electric propulsion system, also known as "Segways," defined in California Vehicle Code section 313. (ORD-16-0004 § 1, 2016)

10.51.020 Prohibited—Sign posting.

Whenever any provision of this Chapter designates and describes any street, alley or sidewalk, or any portion thereof, as an area where the operation of EMBs is prohibited, the Traffic Engineer shall place and maintain signs giving notice thereof on each and every street, alley or sidewalk, or portion thereof, which constitutes an entrance to the area which has been so designated. (ORD-16-0004 § 1, 2016)

10.51.030 Prohibited—Designated areas.

No person shall operate, drive or cause to be propelled an EMB on any street, alley or sidewalk, or portion thereof, in any business district, as defined in California Vehicle Code section 235, which has been designated as an area where operation of EMBs is prohibited. (ORD-16-0004 § 1, 2016)

10.51.040 Use of EMBs by persons with disabilities.

The provisions of this Chapter shall not apply to EMBs used as mobility aids designed for use by persons with disabilities. (ORD-16-0004 § 1, 2016)

10.51.050 Prohibited—Areas enumerated.

The City Council, having made a finding that the operation of EMBs on the following streets, alleys or sidewalks, or portion thereof, will create a hazard to persons or property, determines and

declares said streets, alleys or sidewalks, or portions thereof, as areas where the operation of EMBs is prohibited:

A. East Second Street, between the intersection of Second Street and Livingston Drive and Naples Plaza, including the entire portion of the roadway and the entire width of both the north and south sidewalk, except the entire width of the north sidewalks between the east curb of Bay Shore and San Marco;

B. The Belmont Pier Plaza located at the foot of Belmont Pier;

C. The east-west pedestrian walkway designated as Allin Street between the southerly projection of Thirty-Ninth Place on the west and the southerly projection of Termino Avenue on the east;

D. The Belmont Pier Plaza parking lot located on the beach southerly of Allin Street between Belmont Pier on the west and the southerly projection of Termino Avenue on the east;

E. Midway Street between Thirty-Ninth Place on the west and Termino Avenue on the east including the entire portion of the roadway and the entire width of both the north and south sidewalks;

F. West sidewalk of Termino Avenue between Ocean Boulevard on the north and the westerly projection of the south side of Olympic Plaza on the south;

G. The sidewalks adjacent to Belmont Plaza Pool on the north, south, east and west sides;

H. The street and sidewalks at the end of Plaza Way, between Vista del Golfo and Corso di Oro, adjacent to Look-Out Park;

I. Within the civic center plaza or within Lincoln Park, which together include all areas bounded by the west right-of-way line of Pacific Avenue, the north right-of-way line of Ocean Boulevard, the west right-of-way line of the vacated Chestnut Avenue right-of-way, and the south right-of-way line of Broadway;

J. Within all areas known as The Promenade South and The Promenade North, between Shoreline Drive and Third Street, including the bridges over Seaside Way and Shoreline Drive, and the plaza areas surrounding the children's fountain;

K. Within all portions of the Long Beach Convention and Entertainment Center site, including sidewalks, other pedestrian assembly areas, driving aisles, parking lots and parking structures;

L. South side of Fourth Street between Cherry Avenue and Junipero Avenue and the north side of Fourth Street between Cherry Avenue and Rose Place;

M. That portion of both sides of the street and sidewalks of Thirty-First Street between Atlantic Avenue and Long Beach Boulevard;

N. Both sides of Fourth Street between Ximeno Avenue and Park Avenue; and

O. That portion of the Mark Bixby Memorial Bicycle-Pedestrian Path located within the Harbor District, including its Ocean Boulevard, Pico Boulevard and Terminal Island approaches. (ORD-23-0016 § 2, 2023; ORD-16-0004 § 1, 2016)

10.51.060 Penalty.

Violation of this Chapter is an infraction punishable by a fine not to exceed one hundred dollars ($100.00). (ORD-16-0004 § 1, 2016)

CHAPTER 10.52 ROLLERSKATING

10.52.010 Definitions.

"Roller skate" or "rollerskating" means the propelling by human power or by force of gravity of a device worn upon the feet or shoes and having wheels attached thereto. (Ord. C-5503 § 1 (part), 1979: prior code § 3410.500)

10.52.020 Prohibited—Sign posting.

Whenever any provision of this Chapter designates and describes any street, alley or sidewalk, or any portion thereof, as an area where rollerskating is prohibited, the Traffic Engineer shall place and maintain signs giving notice thereof on each and every such street, alley or sidewalk, or portion thereof, which constitutes an entrance to the area which has been so designated. (Ord. C-5503 § 1 (part), 1979: prior code § 3410.501)

10.52.030 Prohibited—Designated areas.

No person shall rollerskate on any street, alley or sidewalk, or portion thereof, which has been designated as an area where rollerskating is prohibited and on which signs giving notice thereof have been placed and maintained by the Traffic Engineer. (Ord. C-5503 § 1 (part), 1979: prior code § 3410.502)

10.52.040 Prohibited—Areas enumerated.

The City Council, having made a finding that rollerskating on the following streets, alleys or sidewalks, or portions thereof, creates a danger and hazard to persons or property, determines and declares said streets, alleys or sidewalks, or portion thereof, as areas where rollerskating is prohibited:

A. East Second Street, between the intersection of Second Street and Livingston Drive and Naples Plaza, including the entire portion of the roadway and the entire width of both the north and south sidewalk, except the entire width of the north sidewalks between the east curb of Bay Shore and San Marco;

B. The Belmont pier plaza located at the foot of Belmont pier;

C. The east-west pedestrian walkway designated as Allin Street between the southerly projection of Thirty-Ninth Place on the west and the southerly projection of Termino Avenue on the east;

D. The Belmont pier plaza parking lot located on the beach southerly of Allin Street between Belmont pier on the west and the southerly projection of Termino Avenue on the east;

E. Midway Street between Thirty-Ninth Place on the west and Termino Avenue on the east including the entire portion of the roadway and the entire width of both the north and south sidewalks;

F. West sidewalk of Termino Avenue between Ocean Boulevard on the north and the westerly projection of the south side of Olympic Plaza on the south;

G. Repealed;

H. The sidewalks adjacent to Belmont plaza pool on the north, south, east and west sides;

I. The street and sidewalks at the end of Plaza Way, between Vista del Golfo and Corso di Oro, adjacent to Look-out park;

J. Within the civic center plaza or within Lincoln park, which together include all areas bounded by the west right-of-way line of Pacific Avenue, the north right-of-way line of Ocean Boulevard, the west right-of-way line of the vacated Chestnut Avenue right-of-way, and the south right-of-way line of Broadway;

K. Within all areas known as The Promenade South and The Promenade North, between Shoreline Drive and Third Street, including the bridges over Seaside Way and Shoreline Drive, and the plaza areas surrounding the children's fountain;

L. Within all portions of the Long Beach Convention and Entertainment Center site, including sidewalks, other pedestrian assembly areas, driving aisles, parking lots and parking structures;

M. South side of Fourth Street between Cherry Avenue and Junipero Avenue and the north side of Fourth Street between Cherry Avenue and Rose Place;

N. That portion of both sides of the street and sidewalks of Thirty-First Street between Atlantic Avenue and Long Beach Boulevard;

O. Both sides of Fourth Street between Ximeno Avenue and Park Avenue; and

P. That portion of the Mark Bixby Memorial Bicycle-Pedestrian Path located within the Harbor District, including its Ocean Boulevard, Pico Boulevard and Terminal Island approaches. (ORD-23-0016 § 3, 2023; Ord. C-7746 § 1, 2001; Ord. C-7659 § 1, 1999; Ord. C-7643 § 1, 1999; Ord. C-7548 § 1, 1998; Ord. C-7281 § 4, 1994; Ord. C-6883 § 3, 1991; Ord. C-6819 § 2, 1990; Ord. C-6772 § 2, 1990; Ord. C-5956 § 37, 1983; Ord. C-5658 § 2, 1980; Ord. C-5553 § 2, 1980; Ord. C-5503 § 1 (part), 1979: prior code § 3410.503)

CHAPTER 10.54 SKATEBOARDS*

10.54.010 Skateboard defined.

A "skateboard" is any board or other flat object which has wheels attached to it by any means whatsoever and which is intended to be propelled by pushing, pulling or the forces of gravity and which there is not affixed any device or mechanism for steering. (Prior code § 3410.400)

10.54.020 Prohibited—Sign posting.

Whenever any provision of this Chapter designates and describes any street, alley or sidewalk, or any portion thereof, as an area where the operation of skateboards is prohibited, the Traffic Engineer shall place and maintain signs giving notice thereof on each and every street, alley or sidewalk, or portion thereof, which constitutes an entrance to the area which has been so designated. (Prior code § 3410.401)

10.54.030 Prohibited—Designated areas.

No person shall operate, drive or cause to be propelled a skateboard on any street, alley or sidewalk, or portion thereof, which has been designated as an area where operation of skateboards is prohibited. (Prior code § 3410.402)

10.54.040 Prohibited—Areas enumerated.

The City Council, having made a finding that the operation of skateboards on the following streets, alleys or sidewalks, or portion thereof, will create a hazard to persons or property, determines and declares said streets, alleys or sidewalks, or portions thereof, as areas where the operation of skateboards is prohibited:

A. All streets, alleys and sidewalks in an area bounded by and including Vista Street on the north, Nieto Avenue on the east, East Broadway on the south and Park Avenue on the west;

B. The pedestrian overpass located on Carson Street, east of Faculty Avenue;

C. That portion of the streets and sidewalks of Pine Avenue located between Eighth Street and Shoreline Drive;

D. That portion of the street and sidewalks of Shoreline Drive located between Ocean Boulevard and Linden Avenue;

E. That portion of the street and sidewalks of Junipero Avenue located south of Ocean Boulevard;

F. That portion of the street and sidewalks of Manila Avenue located between Pacific Coast Highway and Colorado Street;

G. That portion of the north-south alley between Ultimo Avenue and Flint Avenue located south of Fourth Street;

H. That portion of the street and sidewalks of East Second Street located between Quincy Avenue and Bay Shore Avenue;

I. That portion of the street and sidewalks of Wilton Street located east of Termino Avenue;

J. The bridge located on Neapolitan Lane West crossing over the Naples Canal and the bridges located on the Toledo Street, Ravenna Drive and Neapolitan Lane East, all crossing over the Rivo Alto Canal;

K. That portion of the street and sidewalks of Flint Avenue located between Fourth Street and Colorado Street, and that portion of north-south alley between Flint Avenue and Winslow Avenue located between Fourth Street and Colorado Street;

L. That portion of the street and sidewalks of Shaw Street located between Quincy Avenue and Roycroft Avenue, and that portion of the north-south alley between Quincy Avenue and Roycroft Avenue located between East Broadway Avenue and Livingston Drive;

M. All streets, alleys and sidewalks in an area bounded by and including Shaw Street on the north, Ximeno Avenue on the east, the north sidewalk of Livingston Drive on the south and Belmont Avenue on the west; except Bennett Avenue between Second Street and Shaw Street;

N. All streets, alleys and sidewalks in an area bounded by and including East Broadway Street

*State law reference—Provisions authorizing local authorities to regulate skateboards, Veh. C. § 21967.

on the north, Quincy Avenue on the east, the north sidewalk of Livingston Drive on the south, and Ximeno Avenue on the west;

O. That portion of the street and sidewalks of Sixty-Second Place between Seaside Walk and Ocean Boulevard;

P. That portion of the north-south alley between First Street and Second Street, and east of Termino Avenue;

Q. The Belmont Pier Plaza located at the foot of Belmont Pier;

R. The east-west pedestrian walkway designated as Allin Street between the southerly projection of Thirty-Ninth Place on the west and the southerly projection of Termino Avenue on the east;

S. The Belmont Pier Plaza parking lot located on the beach southerly of Allin Street between Belmont Pier on the west and the southerly projection of Termino Avenue on the east;

T. Midway Street between Thirty-Ninth Place on the west and Termino Avenue on the east including the entire portion of the roadway and the entire width of both the north and south sidewalks;

U. West sidewalk of Termino Avenue between Ocean Boulevard on the north and the westerly projection of the south side of Olympic Plaza on the south;

V. That portion of the sidewalks of Pine Avenue and Tenth Street adjacent to the senior citizen's residential development known as Baptist Gardens, the address of which is 1011 Pine Avenue;

W. All streets and sidewalks within the area south of Ocean Boulevard between the Long Beach Museum of Art on the west and the Taper property on the east, known as Bluff Park;

X. The bicycle path located on granted tide and submerged lands commencing at the Los Angeles River and running in an easterly direction at or adjacent to the waters of the Pacific Ocean;

Y. Roycroft Avenue, between the intersection of Fourth Street and Colorado Street, including the entire portion of the roadway and the entire width of both the east and west sidewalk;

Z. Third Street, between the intersection of Argonne Avenue and Granada Avenue, including the entire portion of the roadway and the entire width of both the north and south sidewalk;

AA. South sidewalk of Seventh Street, between Temple Avenue and Redondo Avenue;

BB. The sidewalks adjacent to Belmont Plaza pool on the north, south, east and west sides;

CC. The street and sidewalks at the end of Plaza Way, between Vista del Golfo and Corso di Oro, adjacent to Look-Out Park;

DD. Quincy Avenue between Third Street and Broadway, including the entire portion of the roadway and the entire width of both the east and west sidewalks;

EE. Within the Civic Center Plaza or within Lincoln Park, which together include all areas bounded by the west right-of-way line of Pacific Avenue, the north right-of-way line of Ocean Boulevard, the west right-of-way line of the vacated Chestnut Avenue right-of-way, and the south right-of-way line of Broadway;

FF. Within all areas known as The Promenade South and The Promenade North, between Shoreline Drive and Third Street, including the bridges over Seaside Way and Shoreline Drive, and the plaza area surrounding the children's fountain;

GG. Within all portions of the Long Beach Convention and Entertainment Center site, including sidewalks, other pedestrian assembly areas, driving aisles, parking lots and parking structures;

HH. South side of Fourth Street between Cherry Avenue and Junipero Avenue and the north side of Fourth Street between Cherry Avenue and Rose Place;

II. That portion of both sides of the street and sidewalks of Thirty-First Street between Atlantic Avenue and Long Beach Boulevard;

JJ. Both sides of Fourth Street between Ximeno Avenue and Park Avenue; and

KK. That portion of the Mark Bixby Memorial Bicycle-Pedestrian Path located within the Harbor District, including its Ocean Boulevard, Pico

Boulevard and Terminal Island approaches. (ORD-23-0016 § 4, 2023; ORD-13-0028, § 1, 2013; Ord. C-7746 § 2, 2001; Ord. C-7659 § 2, 1999; Ord. C-7643 § 2, 1999; Ord. C-7548 § 2, 1998; Ord. C-7281 § 5, 1994; Ord. C-7141 § 3, 1993; Ord. C-6819 § 3, 1990; Ord. C-6772 § 3, 1990; Ord. C-6592 § 7, 1989; Ord. C-6237 § 4, 1986; Ord. C-6225 § 7, 1986; Ord. C-5956 § 38, 1983; Ord. C-5911 § 3, 1982; Ord. C-5678 § 2, 1981; Ord. C-5658 § 1, 1980; Ord. C-5553 § 1, 1980; Ord. C-5418 § 9, 1978; Ord. C-5394 § 9, 1978; Ord. C-5362 § 1, 1977; Ord. C-5263 § 1, 1976; Ord. C-5259 § 1, 1976; Ord. C-5250 § 1, 1976; prior code § 3410.403)

CHAPTER 10.56 VEHICLE OVERLOADS*

10.56.010 Applicability.

The provisions of Sections 10.56.020, 10.56.030, 10.56.040, 10.56.050 and 10.56.060 re-

*State law reference—Provisions on weights, Veh. C. §§ 35000 et seq. and 35550 et seq.

fer exclusively to oversize and overweight loads upon vehicles when operated on the streets and highways within the City. (Prior code § 3470.3)

10.56.020 Statutes applicable.

The applicable provisions of Division 15 of the California Vehicle Code shall constitute the regulations of the City relative to the size and weight of vehicle loads, together with such additional provisions and requirements as are specifically contained in this Chapter, and Chapter 10.41. (ORD-10-0025, § 5, 2010; Prior code § 3470.4)

10.56.030 Permit—Issuance.

The Director of Public Works, or his designee, shall be responsible for the issuance of special permits for loads exceeding the maximum sizes and/or weights specified in Division 15 of the California Vehicle Code, and for administering the rules and regulations pertaining thereto. (ORD-10-0025, § 6, 2010; Prior code § 3470.5)

10.56.040 Permit—Application.

All persons, firms or agencies desiring to move any load across or upon streets and highways within the City, which load exceeds any of the limitations imposed by Division 15 of the California Vehicle Code, shall apply to and first receive a special permit from the Director of Public Works, or his designee. The special permit shall specify the streets upon which the move is authorized and the date and time of the move. A charge for issuing the permit as established by the Director of Public Works, or his designee, shall be paid by the applicant prior to issuance of the permit. (ORD-10-0025, § 7, 2010; Ord. C-5402 § 1, 1978; prior code § 3470.6)

10.56.050 Liability for damage.

Any person, firm or agency granted a special permit, as provided in Section 10.56.040, shall be liable for all damages to any street, highway, bridge, or appurtenances thereto, including, but not limited to, guardrails, signs, traffic signals, streetlights, street trees and similar facilities, resulting from the operation, driving or moving of any vehicle which exceeds any of the limitations imposed by Division 15 of the California Vehicle Code. The permittee shall hold the City harmless from any liability occasioned by or resulting from operations under the special permit. (Prior code § 3470.7)

10.56.060 Costs responsibility.

If, in the judgment of the Director of Public Works, or his designee, it is determined necessary to strengthen any structure over which an overload must pass, or to perform any other work in order to ensure the safe passage of the load upon City streets, the permittee will be required to pay the full cost of such work. Permittee will also be required to reimburse the City for any cost necessitated by the temporary relocation of traffic signals, street lights or other appurtenances in order to permit the safe passage of the loaded vehicle. (ORD-10-0025, § 8, 2010; Prior code § 3470.8)

CHAPTER 10.58 PEDESTRIANS*

10.58.010 Crosswalks—Establishment.

A. The Traffic Engineer shall establish, designate and maintain crosswalks at intersections and other places, by appropriate devices, marks or lines upon the surface of the roadway.

B. Crosswalks shall be established and maintained at all intersections within the Central Traffic District, and at such intersections outside such district, and at other places within or outside the district, where the Traffic Engineer determines that there is particular hazard to pedestrians crossing the roadway, and at such other places as may be designated by ordinance of the Council.

C. The Traffic Engineer may place signs at, or adjacent to, an intersection, in respect to any crosswalk, directing that pedestrians shall not cross in the crosswalk so indicated.

D. Crosswalks are established at the intersections and places designated in Section 10.58.060. (Prior code § 3410.75)

***State law reference**—Provisions on pedestrians' rights and duties, Veh. C. § 21950 et seq.

10.58.015 Crosswalks—Removal.

In order to improve pedestrian safety, traffic flow or accessibility, the City Traffic Engineer is authorized to remove existing marked crosswalks as long as notice and an opportunity to be heard is provided to the public not less than thirty (30) days prior to the scheduled date of removal. The notice of proposed removal shall be posted at the crosswalk identified for removal, as well as such other locations as the City Traffic Engineer shall designate. The notice of proposed removal shall further set forth the form and method of providing input relating to the proposed removal.
(ORD-09-0021, § 33, 2009)

10.58.020 Crossing without crosswalk.

No pedestrian shall cross a roadway, other than by a crosswalk, in the Central Traffic District, or in any business district, except at intersections where pedestrian traffic is controlled by a scramble-system automatic signal. (Prior code § 3410.76)

10.58.030 Reserved.

Editor's note—ORD-09-0014, § 1, adopted June 9, 2009, repealed § 10.58.030, which pertained to pedestrian angle or crossing and derived from prior Code § 3410.77.

10.58.040 Walking on roadway prohibited.

No pedestrian shall stand in any roadway, other than in a safety zone or crosswalk, nor shall any pedestrian walk lengthwise along and within a roadway in a manner that interferes with the lawful movement of traffic. This Section shall not apply to any public officers or employees, or employees of public utilities, contractors or other agencies when necessarily upon a street in line of duty. (Prior code § 3410.78)

10.58.050 Safety zone designation.

The Traffic Engineer is authorized to designate upon the surface of the roadway, by appropriate devices or marks, safety zones at such places and locations as he deems necessary. (Prior code § 3410.79)

10.58.060 Crosswalks—Installation.

The City Traffic Engineer is authorized to place and maintain crosswalks as he may deem necessary to regulate or guide pedestrian traffic, but he shall make such determination of necessity only upon the basis of Traffic Engineering principals and traffic investigations, and in accordance with such standards, limitation and rules as may be set forth in the traffic provisions of this Chapter or applicable laws of the State.
(ORD-09-0021, § 30, 2009; Ord. C 7927 § 1, 2004; Ord. C 7287 § 3, 1994; Ord. C 7068 § 11, 1993: Ord. C 5774 § 6, 1981; Ord. C 5394 § 8, 1978; Ord. C 5298 § 1, 1977; Ord. C 5270 § 1, 1976: Ord. C 5247 § 1, 1976; prior code § 3410.137)

Editor's note—ORD-09-0021, § 30, adopted Aug. 4, 2009, renamed former § 10.58.060 entitled "Crosswalks—Locations" as set out herein.

CHAPTER 10.60 SCHOOL BUSES

10.60.010 Definitions.

For the purpose of this Chapter the following terms shall be deemed and construed to have the meanings respectively ascribed to them in this Section unless from the particular context it clearly appears that some other meaning is intended:

A. "Private school" means any school wherein there is conducted a regular program of education and instruction in the several branches of study required to be taught in the public schools of this State whether such school is conducted for profit or not except a school operated by a public school district.

B. "School bus" means every motor vehicle used for the transportation of seven (7) or more pupils to or from any private school, if such transportation is furnished by:

1. A private school; or
2. Any person for compensation.

A person who receives no consideration for the furnishing of transportation by him except the furnishing of transportation to a child or children of whom he is the parent or guardian shall not be deemed to be furnishing transportation for compensation.

The furnishing of transportation pursuant to any license, permit or certificate issued by the Public Utilities Commission of this State or by the City Council or pursuant to the terms of any franchise issued by the City shall not be construed so as to make any motor vehicle so used a school bus. (Ord. C-5691 § 2 (part), 1981; prior code § 6245)

10.60.020 Inspection certificate required.

No person shall operate a school bus on either a public street or elsewhere unless there is posted therein where it may be readily observed a certificate issued by the California State Highway Patrol to the effect that on a certain date, which shall be not more than one (1) year prior to the date of such operation, the highway patrol carefully and thoroughly inspected the school bus and determined that the design, mechanical condition and equipment thereof then complied with all statutes, rules and regulations then applicable to public school buses. (Prior code § 6245.1)

10.60.030 Driver's certificate required.

No person shall drive any school bus while transporting pupils unless such person is the holder of a valid and effective operator's or chauffeur's license and a school bus driver's certificate issued by the State Department of Motor Vehicles after such examination as the department may prescribe and issued in the same manner and effective for the same term as a certificate issued for a driver of a public school bus. (Prior code § 6245.2)

10.60.040 Insurance.

No school bus shall be operated unless there is in effect insurance as prescribed in regulations issued by the City Manager pursuant to Section 2.84.040. (Ord. C-7934 § 16, 2004; prior code § 6245.3)

CHAPTER 10.62 PUBLIC TRANSPORTATION

10.62.010 Talking with operator—Prohibited.

No person shall talk to or communicate in any manner with the driver, motorman or operator of any bus, streetcar, railroad or interurban car, and no such driver, motorman or operator shall talk to or communicate in any manner with any person, while such driver, motorman or operator is engaged in the performance of his duty as such driver, motorman or operator, except:

A. When it is necessary for such person to obtain from the driver, motorman or operator information relative to his or her transportation; or

B. When the person is an officer, agent, servant or other employee of the company having a franchise to operate such cars or buses, and his conversation with the driver, motorman or operator relates to the latter's duties and is then necessary thereto; or

C. When the person is an officer, agent, servant or employee of the City and it is necessary by reason of his or her duties of employment to talk to or communicate with the driver, motorman or operator. (Prior code § 6243)

10.62.020 Talking with operator—Warning notice.

No person shall operate any such car or bus unless there is posted in a conspicuous place therein and readily visible to the passengers a notice that conservation with or by the driver, motorman or operator thereof, except as allowed in the foregoing section, is unlawful. (Prior code § 6243.1)

10.62.030 Smoking prohibited—Where.

No person shall smoke or possess any burning or lighted cigarette, cigar, or pipe in or upon any streetcar, interurban car, motor bus, or other vehicle operated for the purpose of transporting passengers for hire and picking up and discharging such passengers along a regular route. (Prior code § 6244)

10.62.040 Smoking prohibited—Sign.

No person shall operate any vehicle described in Section 10.62.030 within the City unless there is placed and maintained in a conspicuous place in the vehicle at the front and rear of each compartment thereof a sign with the words "No Smoking"

printed thereon. The letters of the sign shall be painted on a background of contrasting color and shall be of not less than one-quarter inch (1/4") stroke and not less than one and one-half inches (1 1/2") in height. (Prior code § 6244.1)

CHAPTER 10.64 ENFORCEMENT*

10.64.010 Traffic direction.

No person shall fail or refuse to comply with any lawful order of a Police Officer, Fire Department official or Disaster Service Worker approved by the Chief of Police, who is directing traffic. (ORD-13-0010, § 1, 2013; Prior code § 3410.5)

10.64.020 Emergency vehicles exempt.

The provisions of this Title regulating the movement, parking and standing of vehicles shall not apply to authorized emergency vehicles. (Prior code § 3410.7)

10.64.030 Traffic direction compliance.

No pedestrian or the driver of any vehicle shall disobey the instructions of any traffic sign, barrier or mark upon the street, placed in accordance with the provisions of this Title, provided every sign or mark made by the use of paint upon the curb shall bear thereon the City emblem prescribed by the Chief of Police. (Prior code § 3410.8)

CHAPTER 10.66 CONTROL OF VEHICULAR CRUISING

10.66.010 Cruising prohibited.

The ranking peace officer on duty within any area affected by traffic congestion may, having determined that such area is so affected, establish one (1) or more traffic control points at or near such area to regulate cruising. (Ord. C-6648 § 1 (part), 1989)

10.66.020 Cruising defined.

"Cruising" is defined to mean the driving of a motor vehicle three (3) or more times within a four (4) hour period past a traffic control point so established on a portion of any street identified as subject to cruising controls by signs posted at the beginning and end of the controlled roadway, that briefly and clearly state the appropriate provisions of this Chapter and Section 21100(k) of the California Vehicle Code, and after the operator of the vehicle has been given the notice specified in this Chapter. (Ord. C-6648 § 1 (part), 1989)

10.66.030 Elements of the offense.

No person, having driven a motor vehicle past a traffic control point established pursuant to this Chapter twice within any four (4) hour period, and having received written notice that further driving past the traffic control point will constitute a violation of this Chapter, shall drive past that control point within the time period in which cruising controls are in effect. Each successive trip past the traffic control point shall constitute a separate violation of this Chapter, and no additional notice shall be required prior to issuance of a second or subsequent citation. (Ord. C-6648 § 1 (part), 1989)

10.66.040 Exemptions.

The provisions of this Chapter shall not apply to:

A. Any authorized vehicle as defined in Section 165 of the California Vehicle Code;

B. Any publicly owned vehicle of any City, county, district, state or federal agency;

C. Any vehicle licensed for public transportation or vehicles which are normally used for business purposes and are engaged in such business use. (Ord. C-6648 § 1 (part), 1989)

10.66.050 Designated streets.

The provisions of this Chapter shall apply to the following locations:

1. First Street, between Hermosa Avenue and Molino Avenue;

2. Second Street, between Hermosa Avenue and Molino Avenue;

3. Pine Avenue, between Ocean Boulevard and Seventh Street. (ORD-06-0030 § 1, 2006; Ord. C-6648 § 1 (part), 1989)

***State law reference**—Provisions on obedience to traffic signals, Veh. C. §§ 52800 and 21100.3.

10.66.060 Penalty.

It shall be an infraction for any person to violate this Chapter, and upon conviction thereof shall be subject to the payment of penalties as provided in Section 42001 of the California Vehicle Code and as that section may be amended. (Ord. C-6648 § 1 (part), 1989)

CHAPTER 10.68 ADULT CROSSING GUARDS

10.68.010 Initiative ordinance.

AN INITIATIVE ORDINANCE REQUIRING ADULT CROSSING GUARDS AT DANGEROUS INTERSECTIONS

THE PEOPLE OF THE CITY OF LONG BEACH DO ORDAIN AS FOLLOWS:

SECTION I. PURPOSE

In recognition of the serious hazard posed to elementary school children in going to and from school, it shall be the policy of the City of Long Beach to maintain adult crossing guards at school crossings designated as hazardous during the hours when school children are required to cross the street.

SECTION II. FUNDING

The School Crossing Guard Program as herein established shall be funded by revenues available to the City of Long Beach from fines and forfeitures under the California Vehicle Code.

SECTION III. DESIGNATION OF INTERSECTIONS AS HAZARDOUS

An intersection utilized by at least twenty (20) children per hour in coming to and from elementary school shall be deemed hazardous for purposes of this Section, if special problems exist and it is deemed necessary to assist children in crossing a street, such as where the intersection is unusually complicated, presents a heavy vehicular turning pattern or high vehicular speed, where the sight distance is less than a reasonable stopping distance from the crosswalk, or where any one (1) of the following conditions exist:

a) Uncontrolled crossings on the route to school

Where there is no controlled crossing or grade separation within six hundred feet (600') of the location where a request for an adult crossing guard is made and one (1) of the following conditions exist:

1) Where the vehicular traffic volume exceeds the rate of three hundred (300) per hour during the time school children are required to cross while traveling to or from school; or

2) Where the vehicular traffic volume exceeds the rate of two hundred seventy-two (272) per hour and the posted speed limit is thirty-five (35) to and including forty-five (45) miles per hour; or

3) Where the vehicular traffic volume exceeds the rate of two hundred fifty (250) per hour and the posted speed limit is fifty (50) miles per hour or more.

b) Stop Sign-controlled crossings on the route to school

Where the vehicular traffic volume through the crosswalk children must use on an undivided roadway of four (4) or more lanes exceeds the rate of five hundred (500) per hour during any period when children are required to go to or from school.

c) Signal controlled crossings on the route to school

At traffic signals where potentially conflicting vehicular turning movements through the crosswalk children must use exceed the average rate of ten (10) vehicles per minute of signal green time, taken over a period of at least fifteen (15) minutes of signal green time, during any period when children are required to go to or from school.

SECTION IV. PEDESTRIAN SAFETY ADVISORY COMMITTEE

A committee shall be established, entitled the PEDESTRIAN SAFETY ADVISORY COMMITTEE, which shall determine whether any intersection utilized by children in coming to and from school poses a special problem of safety requiring the installation of an adult crossing guard, and which shall advise the City Council of its findings and recommendations.

a) Composition of committee
The PEDESTRIAN SAFETY ADVISORY COMMITTEE shall be composed of one (1) representative from each Council district, who shall be nominated by the respective Councilperson of said district and appointed by the City Manager of the City of Long Beach; one (1) representative from the Long Beach Unified School District, who shall be appointed by the Superintendent of the Long Beach Unified School District; one (1) City Traffic Engineer, who shall be appointed by the City Manager; one (1) representative of the nonpublic schools of the Long Beach area, who shall be appointed by the City Manager; and the President of the Parent Teacher Association of the Long Beach Unified School District or a designee thereof.

b) Meetings of the committee

1) Special meetings:
The committee shall meet within ten (10) days at the request of the City Manager, the chairperson of the committee or any two (2) members of the committee.

2) Regular meetings:
Notwithstanding Section IV(b)(1), the committee shall meet regularly not less than twice per school year. Prior to the commencement of the fall semester, and prior to the commencement of the spring semester.

c) Committee organization
The committee shall adopt rules for its own organization and conduct and shall select its own chairperson.

SECTION V. ACTION BY CITY COUNCIL

Within twenty (20) days after receiving the findings of the committee recommending the installation of a crossing guard at a designated intersection, the City Council must:

a) Initiate the installation of an adult crossing guard at the designated intersection; or

b) Place the committee's recommendation on the agenda of a regular public Council meeting within forty-five (45) days. The Council may, by a majority vote at such regular meeting, reject the committee's recommendation upon its finding that the designated intersection does not present a potential hazard to school children; or

c) If such finding is not adopted as set forth in Section V(b), the guard shall forthwith be installed pursuant to the recommendations of the PEDESTRIAN SAFETY ADVISORY COMMITTEE. (Ord. C-5490, 1978)

CHAPTER 10.69 PARKING RESTRICTED TO SENIOR CITIZENS

10.69.010 Purpose.

This Chapter is enacted pursuant to authority granted by Section 22519 of the California Vehicle Code to allow full use and access to community centers by senior citizens who participate in programs there aimed at them and to reduce the use of parking spaces at community centers by individuals who are not using the community centers. (Ord. C-6872 § 1 (part), 1991)

10.69.020 Spaces in off-street parking facilities—Designation.

The parking spaces in off-street parking facilities owned or operated by the City and designated in Section 10.69.030, when indicated by signs, are authorized for the exclusive use of vehicles which display a permit issued by the City through its Department of Parks and Recreation to residents over the age of fifty-five (55) years. The City Traffic Engineer is authorized to place signs to designate these reserved parking spaces. (Ord. C-6872 § 1 (part), 1991)

10.69.030 Parking restricted to senior citizens—Enumerated.

For the purposes of Section 10.69.020, the following parking spaces are designated for exclusive use by citizens over the age of fifty-five (55) years:

1. Twenty-six (26) spaces in the southwest portion of the off-street parking lot at Houghton Park, closest to the Community Center. (Ord. C-6872 § 1 (part), 1991)

10.69.040 Unauthorized use prohibited.

No person shall stop, stand or park any vehicle in any parking space designated in Section 10.69.030 when indicated by signs unless expressly authorized by Section 10.69.020. (Ord. C-6872 § 1 (part), 1991)

10.69.050 Permit—Issuance.

A. The Department of Parks and Recreation shall issue senior citizen parking permits, and shall keep a record of each permit issued, at the facility to which the permit applies, which includes the license number of the vehicle for which the permit is issued. No more than one (1) permit shall be issued for each vehicle for which application is made.

B. Senior citizen parking permits may be issued only for passenger vehicles, pickup trucks, and vans, and only on application of a person over the age of fifty-five (55) years who is the registered owner or has exclusive use of the vehicle for which application is made. The Director of the Department of Parks and Recreation shall require proof of age and vehicle registration or use and such proof shall be satisfactory to him, in his sole opinion.

C. Each senior citizen parking permit shall be issued on a calendar year basis, and shall expire at midnight on December 31st next following its issuance.

D. Each application for a senior citizen parking permit shall be accompanied by such fee therefor as may be established from time to time by resolution of the City Council. The fee for permits issued for less than twelve (12) months may be reduced in proportion to the time already elapsed in the calendar year for which the permit is issued. (Ord. C-6872 § 1 (part), 1991)

10.69.060 Permit—Display.

Senior citizen parking permits shall be displayed in the lower left corner of the rear window or on the driver side of the rear bumper. (Ord. C-6872 § 1 (part), 1991)

10.69.070 Permit—Revocation.

A. The Director of the Department of Parks and Recreation is authorized to revoke a senior citizen parking permit that violates any provision of this Chapter and, on written notification thereof, the permit holder shall surrender the permit to the Director or prove its destruction or disfigurement to the Director's satisfaction.

B. Any person whose senior citizen parking permit has been revoked shall not be issued a new permit until expiration of a period of one (1) year following the date of revocation and until such person makes a new application and pays the required fee. (Ord. C-6872 § 1 (part), 1991)

CHAPTER 10.70 GOLF CART CROSSING ZONES

10.70.010 Establishment.

A. This Chapter is enacted pursuant to authority granted by Section 22115.1 of the California Vehicle Code to allow crossing by golf carts over streets other than State highways which have

a posted speed limit of forty-five (45) miles per hour or less and which are immediately adjacent to a golf course.

B. Those crossing zones described in Section 10.70.020 are declared to be crossing zones for use by golf carts.

C. The City Traffic Engineer is authorized to erect signs identifying the crossing zones and other appropriate signs relating to such crossing zones. (Ord. C-6962 § 1 (part), 1992)

10.70.020 Golf cart crossing zones—Enumerated.

A. For the purposes of Section 10.70.010, the following crossing zones are designated as golf cart crossing zones:

1. Wardlow Road three hundred thirty feet (330′) east of Lakewood Boulevard;

2. Wardlow Road two hundred ninety feet (290′) west of Clark Avenue;

3. Sixth Street (east leg) at Federation Drive. (Ord. C-6962 § 1 (part), 1992)

10.70.030 Right-of-way.

A. The driver of any vehicle on a street or highway transversed by a golf cart crossing zone shall yield the right-of-way to any golf cart in a crossing zone that is marked by signs.

B. Subsection A of this Section does not relieve the driver of a golf cart in a crossing zone from the duty of using due care for his or her own safety.

C. Drivers of golf carts shall use crossing zones only at times other than during darkness. (Ord. C-6962 § 1 (part), 1992)

CHAPTER 10.71 SHARED MICROMOBILITY DEVICE PROGRAM

10.71.010 Purpose.

Consistent with the City′s goals of enhancing micromobility and access, easing traffic congestion, and promoting sustainability, this Chapter creates a program to facilitate the use of shared micromobility devices while ensuring the protection of public health and safety, including the safety of the public traveling by foot, bicycle, or vehicle on public sidewalks, streets, and other public rights-of-way. (ORD-19-0013 § 1, 2019)

10.71.020 Definitions.

A. ″Abandon″ shall mean leaving an item unattended for any length of time.

B. ″City″ shall mean the City of Long Beach, California.

C. ″Director″ shall mean the Director of Public Works or designee.

D. ″Operator″ shall mean any person or businesses entity selected by the City to participate in the Shared Micromobility Device Program pursuant to this Chapter.

E. ″Private property″ shall mean real property owned by any non-governmental legal entity.

F. ″Public area″ shall mean any outdoor area that is open to the public for public use, whether owned or operated by the City or a private party.

G. ″Public right-of-way″ shall mean any public alley, parkway, public transportation path, roadway, sidewalk, or street that is owned, granted by easement, operated, or controlled by the City.

H. ″Shared micromobility device″ shall mean any land transportation device by which a single person can be propelled, moved or drawn, that is displayed, offered or placed for rent in any public area or public right-of-way, or placed on private property by agreement with the private property owner, except that a ″shared micromobility device″ does not include any device being vended or made available for rent exclusively from a vehicle pursuant to a valid City vending permit; a car share vehicle, as defined by California Vehicle Code section 22507; a device authorized by the City bike share system or a private bike share or private e-scooter system; a taxicab as regulated in Chapter 5.80 of this Code, a device operated by the Los Angeles County Metropolitan Transportation Authority; or any other device excluded pursuant to administrative regulations. (ORD-19-0013 § 1, 2019)

10.71.030 Administrative regulations.

A. The City may adopt administrative regulations to implement the provisions of this Chapter, including, but not limited to, permit application procedures and permit standards, which may include regulations relating to lawful conduct, insurance, indemnification, public safety, data sharing, data privacy, and/or the timely removal of hazards.

B. No person shall fail to comply with the City's administrative regulations. Any violation of any administrative regulation issued pursuant to this Section shall constitute a violation of this Code and shall subject the violator to the penalties set forth in this Chapter. (ORD-19-0013 § 1, 2019)

10.71.040 Prohibited conduct.

Notwithstanding any other provision of this Code, no person may:

A. Display, offer or make available for rent any shared micromobility device within the City, unless the person has first obtained: (1) a valid shared micromobility operator permit; and (2) a business license issued in accordance with Chapter 5.80 of this Code; and (3) insurance and indemnification naming the City as required by the shared micromobility operator permit.

B. Abandon a shared micromobility device not authorized by this Chapter in the public right-of-way or a public area in such a way that the device is available for rent; and

C. Abandon a shared micromobility device in the public right-of-way or a public area in a manner that: (1) obstructs travel upon or blocks access to a public right-of-way; (2) poses an immediate public safety hazard; or (3) is otherwise prohibited by applicable laws or administrative regulations. (ORD-19-0013 § 1, 2019)

10.71.050 Maximum number of shared micromobility operator permits and shared micromobility devices permitted.

A. The City may issue up to six (6) shared micromobility operator permits authorizing the deployment of a shared micromobility device within the City, with both electric scooters and electric bikes, or other future devices as shared micromobility devices. No shared micromobility operator permits shall be issued to any operator that proposes to deploy a shared micromobility device that is exclusively powered by the human body or powered by combustion engine.

B. The City may establish the number of shared micromobility devices authorized under each shared micromobility operator permit. No more than on a weekly basis or within fourteen days following any City Council action adjusting the number of permitted operators or devices pursuant to Subsection D, the City may adjust the maximum number of devices authorized by each shared micromobility operator permit. The City shall take into consideration market needs, the number of devices deployed in the City, device utilization, and any other criteria set forth in administrative regulations. The City shall first publish his or her tentative adjustment decision under this Section, along with reasons supporting the decision, and solicit comments prior to making a final determination. The City's determinations under this Section shall constitute the final decision of the City and are not subject to further administrative review. No person shall fail to comply with the City's established device limitation.

C. No operator may be granted authorization for less than three hundred fifty (350) shared micromobility devices.

D. At any time, in the City Council's discretion, the City Council may reassess the number of shared micromobility operator permits authorized for issuance. The City Council, in its discretion, may determine by resolution that the number of shared micromobility operator permits or the number of total authorized devices should be reduced or increased. (ORD-19-0013 § 1, 2019)

10.71.060 Shared micromobility operator permit application procedure, fees and requirements.

A. Any person seeking to obtain a shared micromobility operator permit shall submit a writ-

ten application, signed under penalty of perjury, using the form designated by the City for that purpose.

B. The City Council may establish permit fees and charges by resolution, which shall:

1. Defray the City's costs in administering and enforcing the provisions of this Chapter; and

2. Reflect charges associated with use of public property pursuant to this Chapter.

C. The City may specify the information that must be provided in connection with an application and the form in which the information is to be provided. The application shall contain, at a minimum, the following information:

1. The name and business address of each person or entity that: (i) has more than a ten percent equity, participation, or revenue interest in the applicant; or (ii) is a trustee, City, partner, or officer of that entity or of another entity that owns or controls the applicant, excepting persons serving in those capacities as volunteers, without compensation, for organizations exempt from income taxes under Sections 501(c)(3), (4), or (6) of the Internal Revenue Code;

2. The name and business address of any parent or subsidiary of the applicant, namely, any other business entity owning or controlling the applicant in whole or in part, or owned or controlled in whole or in part by the applicant, and a statement describing the nature of any such parent or subsidiary business entity;

3. Information sufficient to show that the applicant is financially, technically, and legally qualified to operate and maintain a shared micromobility device system;

4. A description of the proposed plan of operation, including, at a minimum, a detailed description of:

a. The applicant's current operations in the City and other jurisdictions, including copies of the applicant's operating permits for all such jurisdictions,

b. The applicant's proposed operations in the City, the plan for balancing shared micromobility devices for Citywide coverage, the plan for regular shared micromobility device maintenance, levels of staff for operations and administration, and the plan for customer service and response to customer complaints,

c. The applicant's regulatory compliance program,

d. The applicant's history of, intent to, and ability to comply with, State and local law,

e. The applicant's plans to implement safety programs, including, for example, a program by which the applicant will receive information about and notify users of inappropriate use,

f. The applicant's plans to educate users of shared micromobility devices about applicable California Vehicle Code provisions and other applicable laws, regulations, and guidelines,

g. The applicant's plans to comply with applicable Federal, State, and local data privacy laws and otherwise to protect the privacy of personal information provided by users, and

h. Any other requirements set forth by administrative regulation. (ORD-19-0013 § 1, 2019)

10.71.070 Shared micromobility operator selection.

A. City staff shall review all applications and make written recommendations to the Director based on a ranking of each qualified applicant in accordance with objective criteria set forth by this Chapter and administrative regulations.

B. Each qualified applicant shall be evaluated based upon objective criteria including: experience; proposed operations and maintenance plan; financial wherewithal and stability; adequacy of insurance; ability to begin operations in a timely manner; responsiveness to the City's direction and compliance with regulations during the program; public education strategies; references; relevant record of the applicant's or officers', owners' or principals' violations of Federal, State or local law, or rules and regulations; and any other objective criteria established by administrative regulation.

C. Each applicant shall be provided an opportunity to submit written comments or objections to the City's recommendations.

D. The City shall set forth, in writing, the reasons supporting its final determinations. The City may request additional information from any applicant or any other source that would assist in determining the final qualifications and rankings.

E. The City shall grant a shared micromobility operator permit to the highest six ranked applicants. Should two applicants receive the same score, a lottery shall be used to establish the final rankings for any applicants that achieved the same score.

F. The City's determinations under this Section shall be final and shall not be subject to further administrative review.

G. The City may impose, as part of any shared micromobility operator permit issued, any and all conditions that are necessary to effectuate the purposes of this Chapter, mitigate traffic impacts, ensure accessibility of the public right-of-way and availability of public space for shared use by all, or protect the health, welfare, and safety of the public. No person shall fail to comply with such permit conditions. (ORD-19-0013 § 1, 2019)

10.71.080 Limitations on City liability.

To the fullest extent permitted by law, the City shall not assume any liability whatsoever with respect to having issued a shared micromobility operator permit or otherwise approving the operation of any shared micromobility device. As a condition to the issuance of any shared micromobility operator permit, the applicant shall be required to meet all of the following conditions:

A. The applicant must execute an agreement, in a form approved by the City Attorney, agreeing to indemnify, defend (at applicant's sole cost and expense), and hold harmless the City, and its officers, officials, employees, representatives, and agents from any and all claims, losses, damages, injuries, liabilities or losses which arise out of, or which are in any way related to, the City's issuance of or decision to approve a shared micromobility operator permit, the process used by the City in making its decision, or the alleged violation of any Federal, State or local laws by the applicant or any of its officers, managers, employees or agents.

B. Maintain insurance at coverage limits, and with conditions thereon determined necessary and appropriate from time to time, as determined by the Risk Manager and name the City of Long Beach as additional insured.

C. The applicant's insurance policy shall be endorsed to state that coverage shall not be cancelled except after twenty (20) days' prior written notice by certified mail has been given to the City. If any insurance policy issued to a permittee is cancelled for any reason, the permit issued under this Chapter is automatically suspended. In order to reinstate the permit, the permittee shall provide a new certificate and policy of insurance to the City. Any contractors or others which applicant may use as part of their application and permit shall be required to maintain insurance in compliance with the provisions of this Section and to indemnify the City to the same extent as applicant.

D. Reimburse the City for all costs and expenses, including, but not limited to, attorney fees and costs, which it may be required to pay as a result of any claim, lawsuit, or legal challenge related to the City's approval of or activities conducted pursuant to the applicant's shared micromobility operator permit. The City may, at its sole discretion, participate at its own expense in the defense of any such action, but such participation shall not relieve any of the obligations imposed hereunder.

E. The applicant shall include the City in any waivers and disclaimers of liability provided to end-users' agreement, expressly designating the City as a third-party beneficiary of its provisions. (ORD-19-0013 § 1, 2019)

10.71.090 Grounds for revocation, suspension or denial.

A shared micromobility operator permit may be revoked, suspended, or denied by the City based upon any of the following grounds:

A. An applicant or operator, including its employees, managers, officers, principals, directors, owners, contractors, representatives, or agents:

1. Making one or more false or misleading statements, or material omissions on the permit application, during the application process, or during program operation;

2. Failing to provide information requested or required by the City;

3. Failing to comply with the City's established numeric device limitation;

4. Operating or proposing to operate in a manner that endangers public health or safety; or

5. Failing to comply with any requirement imposed by the provisions of this Code (or successor provision or provisions) including any rule, regulation, condition or standard adopted pursuant to this Chapter, or any term or condition imposed on the shared micromobility operator permit, or any provision of State law.

B. Conviction of the operator, to include any of its officers, owners or principals, of a criminal offense that is substantially related to the qualifications, functions or duties of the shared micromobility business or profession, including, but not limited to, any criminal conviction involving a violent or serious felony, fraud, deceit, or embezzlement. (ORD-19-0013 § 1, 2019)

10.71.100 Impoundment of devices.

A. A shared micromobility device that is displayed, offered, or made available for rent, or abandoned, in the public right-of-way or a public area in violation of Section 10.71.040 shall be subject to immediate impoundment by the City.

B. The City Council may adopt impound fees by resolution, which shall reflect the City's enforcement, investigation, storage and impound costs.

C. No person shall retrieve any impounded shared micromobility device except upon consultation with City staff by appointment during business hours, demonstrating proper proof of ownership of the device, and payment of applicable impound fees. (ORD-19-0013 § 1, 2019)

10.71.110 Enforcement.

A. Any person who violates any provision of this Chapter, including any permit condition, shall be guilty of an infraction, which shall be punishable by a fine not exceeding two hundred fifty dollars, or a misdemeanor, which shall be punishable by a fine not exceeding five hundred dollars per violation or by imprisonment in the County Jail for a period not exceeding six months or by both such fine and imprisonment.

B. Any person who violates any provision of this Chapter, including any permit condition, shall be subject to revocation, suspension or denial of the permit, administrative fines and administrative penalties pursuant to Chapter 9.37 of this Code.

C. Any person convicted of violating this Chapter in a criminal case, or found to be in violation of this Chapter in a civil or administrative case brought by a law enforcement agency, shall be ordered to reimburse the City and other participating law enforcement agencies their full investigative costs. (ORD-19-0013 § 1, 2019)

CHAPTER 10.80 TOLEDO BRIDGE OVER RIVO ALTO CANAL

10.80.010 Purpose.

The purpose of this Chapter is to establish a weight limit and load restriction on the Toledo East Bridge over Rivo Alto Canal and Toledo West Bridge over Rivo Alto Canal. (ORD-20-0031 § 1, 2020)

10.80.020 Scope.

A. In order to protect the public, the City of Long Beach accepts the findings and recommendations of the latest County of Los Angeles, Department of Public Works Bridge Load Rating Analysis, limiting the maximum weight and load of vehicles utilizing the Toledo East Bridge over Rivo Alto Canal and Toledo West Bridge over Rivo Alto Canal.

B. The Toledo East Bridge over Rivo Alto Canal and Toledo West Bridge over Rivo Alto Canal shall be restricted to a maximum and load of vehicles of nineteen (19) tons.

C. The restriction shall remain in effect as long as signs giving notice thereof are posted at the bridge approaches in accordance with Section 21400 of the California Vehicle Code.

D. The City of Long Beach, Department of Public Works shall erect and maintain suitable

signs in accordance with Section 21400 of the California Vehicle Code. (ORD-20-0031 § 1, 2020)

10.80.030 Violations.

Violations of this Chapter shall be punishable in accordance with California Vehicle Code section 35753. (ORD-20-0031 § 1, 2020)

CHAPTER 10.81 RAVENNA BRIDGE OVER RIVO ALTO CANAL

10.81.010 Purpose.

The purpose of this Chapter is to establish a weight limit and load restriction on the Ravenna Bridge over Rivo Alto Canal. (ORD-20-0034 § 1, 2020)

10.81.020 Scope.

A. In order to protect the public, the City of Long Beach accepts the findings and recommendations of the latest County of Los Angeles, Department of Public Works Bridge Load Rating Analysis, limiting the maximum weight and load of vehicles utilizing the Ravenna Bridge over Rivo Alto Canal.

B. The Ravenna Bridge over Rivo Alto Canal shall be restricted to a maximum weight and load of vehicles of thirty-four (34) tons.

C. The restriction shall remain in effect as long as signs giving notice thereof are posted at the bridge approaches in accordance with Section 21400 of the California Vehicle Code.

D. The City of Long Beach, Department of Public Works shall erect and maintain suitable signs in accordance with Section 21400 of the California Vehicle Code. (ORD-20-0034 § 1, 2020)

10.81.030 Violations.

Violations of this Chapter shall be punishable in accordance with California Vehicle Code section 35753. (ORD-20-0034 § 1, 2020)

CHAPTER 10.82 SPECTATORS PROHIBITED AT STREET RACES, SIDESHOWS, AND RECKLESS DRIVING EXHIBITIONS

10.82.010 Definitions.

The definitions in this Section apply to the following terms as used in this Chapter:

A. "Street race" or "street racing" means any motor vehicle speed contest or motor vehicle exhibition of speed referred to in subdivisions (a) and (c) of California Vehicle Code Section 23109, as may be amended from time to time.

B. "Sideshow" means an event in which two or more persons block or impede traffic on a highway for the purpose of performing motor vehicle stunts, street racing, or reckless driving for spectators referred to in subdivision (i)(2)(A) of California Vehicle Code Section 23109, as may be amended from time to time.

C. "Reckless driving exhibition" means any exhibition of reckless driving referred to in California Vehicle Code section 23103, as it may be amended from time to time.

D. "Offstreet parking facility" has the same meaning as set forth in subdivision (c) of California Vehicle Code section 12500, as it may be amended from time to time, and includes any public or private parking facility open and accessible to members of the public.

E. "Spectator" means any person who is present at a street race or reckless driving exhibition, or the site of the preparations for either of these activities, for the purpose of viewing, observing, watching, or witnessing the event as it progresses. A spectator includes any person at the location of the event without regard to the means by which the person arrived.

F. A person is "present" at a street race or reckless driving exhibition if that person is within two hundred (200) feet of the location of the street race or reckless driving exhibition, or within two hundred (200) feet of the site of the preparations for either of these activities.

G. "News reporter" means a person who is connected with or employed by any news service,

online news service, newspaper, other periodical publication, or radio or television station or network, and who is present at a street race or reckless driving exhibition while gathering, receiving, or processing information for communication to the public in or on behalf of said employer.

H. "Scene" means the site or location of a street race, sideshow, or reckless driving exhibition or the site or location of the preparations for a street race or reckless driving exhibition. The scene includes the path or course of the street race or reckless driving exhibition.

I. "Preparations" for any street race, sideshow, or reckless driving exhibition include, but are not limited to, any of the following acts done for the purpose of a street race, sideshow, or reckless driving exhibition:

1. One (1) or more motor vehicles and persons have arrived at a predetermined location on a public street or highway or in an offstreet parking facility;

2. One (1) or more persons have gathered on, or adjacent to, a public street or highway;

3. One (1) or more persons have gathered in an offstreet parking facility;

4. One (1) or more persons have gathered for a sideshow, motorcycle stunting or other exhibition in conjunction with a street race or reckless driving exhibition;

5. One (1) or more persons have impeded the public use of a public street, highway, or offstreet parking facility by acts, words or physical barriers;

6. One (1) or more motor vehicles have lined up on a public street, highway, or offstreet parking facility with motors running;

7. One (1) or more drivers is revving a motor vehicle's engine or causing the motor vehicle's tires to spin; or

8. A person is standing or sitting in a location for the purpose of acting as a race starter. (ORD-26-0005 § 1, 2026; ORD-22-0008 § 1, 2022)

10.82.020 Spectators Prohibited at Street Races, Sideshows, and Reckless Driving Exhibitions; News Reporters.

A. It shall be unlawful for any person to be knowingly present as a spectator at a street race, sideshow, or reckless driving exhibition conducted on a public street or highway or in an offstreet parking facility.

B. It shall be unlawful for any person to be knowingly present as a spectator where preparations are being made for a street race, sideshow, or reckless driving exhibition conducted on a public street or highway or in an offstreet parking facility.

C. Nothing in this section prohibits peace officers or their agents who are acting in the course of their official duties from being spectators at a street race, sideshow, or reckless driving exhibition and/or spectators at the location of preparations for any of these activities.

D. This section does not prohibit news reporters from being spectators at a street race, sideshow, or reckless driving exhibition and/or spectators at the location of preparations for any of these activities while they are engaged in the gathering of information for purposes of disseminating it to the public. (ORD-26-0005 § 1, 2026; ORD-22-0008 § 1, 2022)

10.82.030 Violations and Admissible Evidence.

A. A violation of this Chapter may be punishable as a misdemeanor or an infraction at the discretion of the City Prosecutor.

B. Notwithstanding any other provision of law, to prove a violation of Section 10.82.020 of this Chapter, admissible evidence may include, but is not limited to, any of the following:

1. That the person charged has previously participated in or been a spectator at a street race, sideshow, or reckless driving exhibition;

2. That the person charged has previously aided and abetted street racing, sideshow, or a reckless driving exhibition;

3. That the person charged has previously attended a street race, sideshow, or reckless driving exhibition; or

4. That the person charged was previously present at a location where preparations were being made for a street race, sideshow, or reckless driving exhibition, or where a street race or reckless driving exhibition was in progress;

5. To the fullest extent permissible by law, evidence of prior act(s) may be admissible to show the plan, opportunity, intent, knowledge, identity and/or propensity of the person charged to be present at a street race, sideshow, or a reckless driving exhibition if the prior act(s) occurred within three (3) years of the presently charged offense. The prior act(s) may also be admissible to show that, in the absence of a mistake or accident, the person charged had knowledge that a street race, sideshow, or reckless driving exhibition was taking place.

C. In addition to the circumstances set out in subsection B of this Section, and notwithstanding any other provision of law, to prove a violation of this Chapter, admissible evidence may also include, but is not limited to, any of the following:

1. The time of day;

2. The nature and description of the scene, including the number and configuration of traffic lanes;

3. The number of people at the scene;

4. The location of the person charged in relation to any person or group of persons present at the scene;

5. The number and types of motor vehicles at the scene;

6. That the motor vehicles at the scene have been modified or altered to increase power, handling, or visual appeal;

7. That the person charged drove or was transported to the scene; or

8. That the person charged admitted to being a spectator at a street race, sideshow, or reckless driving exhibition. (ORD-26-0005 § 1, 2026; ORD-22-0008 § 1, 2022)

Title 11

(RESERVED)

Title 12

LONG BEACH OIL CODE*

Chapter 12.04 General Provisions

12.04.010 Title.
12.04.020 Purpose.
12.04.030 General.
12.04.040 Definitions.

Chapter 12.08 Oil Operating Areas

12.08.010 Drilling prohibited generally.
12.08.020 Permit required.
12.08.030 Area 1—Harbor district central.
12.08.040 Area 2—West sixty feet of the flood control channel harbor in district.
12.08.050 Area 3—Tidelands in the harbor district east of the back channel.
12.08.060 Area 4—Tidelands in the harbor district west of the back channel.
12.08.070 Area 5—Signal Hill northwest.
12.08.080 Area 6—Signal Hill, cemetery, north and northeast.
12.08.090 Area 7—Signal Hill, reservoir and southeast.
12.08.100.1 Area 8—Alamitos Heights and Flats.
12.08.110 Area 9—San Gabriel River.
12.08.120 Area 10—Signal Hill Water Department lands northeast.
12.08.130 Area 11—Water Department lands, airport central south.
12.08.140 Area 12—Virginia Country Club west.
12.08.150 Area 13—Flood control, Del Amo south.
12.08.160 Area 14—Airport central and west.
12.08.170 Area 15—Airport northwest.
12.08.180 Area 16—Willow and Lakewood.
12.08.190 Area 17—Airport west.
12.08.200 Area 18—Recreation Park.
12.08.210 Area 19—Airport central and east.
12.08.220 Area 20—Signal Hill, cemetery and north.
12.08.230 Area 21—Signal Hill reservoir district.
12.08.240 Area 22—Amusement park.
12.08.250 Area 23—Flood control—San Diego Freeway.
12.08.255 Area 24—Bellflower oil drill site.
12.08.257 Area 25—2nd St. and Studebaker Road drill site.

***Editor's note**—ORD-16-0027 § 1(Exh. A), adopted Nov. 22, 2016, amended Title 12 in its entirety to read as herein set out. Former Title 12, §§ 12.04.010—12.64.040 was entitled "Oil Production Regulations."

12.08.260 Boundary change—General.
12.08.270 Boundary change—Initiation.
12.08.280 Boundary changes—Notice.
12.08.290 Boundary change—Planning Commission recommendation.
12.08.300 Boundary change—Appeal of Planning Commission denial.
12.08.310 Boundary change—Council action required.
12.08.320 Boundary change—Findings required.

Chapter 12.12 Permits

12.12.010 Drilling permit—Required.
12.12.020 Well permit—Required.
12.12.030 Drilling permit—Departmental approval required.
12.12.040 Transfer.
12.12.050 Drilling permit—Application contents.
12.12.060 Special conditions—Generally.
12.12.070 Special conditions—Drilling or redrilling operations.
12.12.080 Special conditions—Petroleum operations.
12.12.090 Special conditions variance—Authorized.
12.12.100 Special conditions variance—Hearing Examiner.
12.12.110 Special conditions variance—Hearing.
12.12.120 Special conditions variance—Notice.
12.12.130 Special conditions variance—Hearing Examiner action.
12.12.140 Special conditions variance—Findings required.
12.12.150 Special conditions variance—Appeal.
12.12.160 Other permits.
12.12.170 Drilling permit—Fees.
12.12.180 Well permit—Fees.
12.12.190 Term.
12.12.200 Fees—Delinquency penalty.
12.12.210 Fees—Constitutes lien.
12.12.220 Fees—Liability for payment.
12.12.230 Fees—Collection by court action.
12.12.240 Designation of agent.
12.12.250 Notice of sale or transfer.

Chapter 12.16 Well Location

12.16.010 Compliance required.
12.16.020 Location.
12.16.030 Consolidated drill site plans.

LONG BEACH OIL CODE

Chapter 12.20 Derricks

12.20.010 Standards.
12.20.020 Removal.

Chapter 12.24 Blowout Protection

12.24.010 Drilling and redrilling.
12.24.020 Other wells.

Chapter 12.26 Natural Gas Processing Facilities

12.26.010 Locations for establishment or expansion.
12.26.020 Development standards.

Chapter 12.28 Development Standards

12.28.010 Road and drill site surfacing.
12.28.020 Waste control.
12.28.030 Fencing.
12.28.040 Well cellars.
12.28.050 Removal of equipment.

Chapter 12.32 Noise

12.32.010 Excessive noise prohibited.
12.32.020 Areas 5, 6, 7A, 7B, 8, 9, 12, 13, 16, 18, 19, 21, 22, 23 and 24.
12.32.030 Acoustical blankets.
12.32.040 Monitoring operations authorized.

Chapter 12.36 Abandoned and Idle Wells

12.36.010 Abandonment procedure.
12.36.020 Idle well—Determination.
12.36.030 Idle well—Notice.
12.36.040 Suspension of provisions.
12.36.050 Application for exemption.
12.36.060 Conclusively idle wells.
12.36.070 Right of entry for inspection.

Chapter 12.40 Storage

12.40.010 Zoning regulations applicable.
12.40.020 Maximum tank capacity for each producing oil well.
12.40.030 Design, construction, installation and maintenance of storage tanks.
12.40.040 Loading by truck from production tank sites.

Chapter 12.44 Fire Prevention

12.44.010 Electrical equipment.
12.44.020 Internal combustion engines, storage tanks, fired equipment and open flames.
12.44.030 Flammable waste gases or vapors.
12.44.040 Fire control equipment.

Chapter 12.48 Enforcement and Review Procedure

12.48.010 Enforcement duty—Stop orders.
12.48.020 Appeal—City Council to hear.
12.48.030 Appeal—Filing.
12.48.040 Appeal—Records and reports.
12.48.050 Appeal—Hearing notice.
12.48.060 Appeal—Decision.

Chapter 12.52 Permit Revocation Procedure

12.52.010 Grounds.
12.52.020 Initiation.
12.52.030 Immediate suspension.
12.52.040 Time extension to remedy grounds of suspension.
12.52.050 Hearing—Demand.
12.52.060 Hearing—Setting time and date.
12.52.070 Hearing—Evidence.
12.52.080 Hearing—Decision.
12.52.090 Work to cease—Exemptions.

Chapter 12.56 Hazardous Liquid Pipelines

12.56.010 Rules and regulations adopted.
12.56.020 Amendments.
12.56.030 Section 51014 amended.
12.56.040 Section 51015(a) amended.
12.56.050 Section 51010.5 amended.
12.56.060 Fire Chief designated.
12.56.070 Enforcement; civil penalties for violation.

Chapter 12.60 Exemption of County Flood Control District

12.60.010 Exemption from provisions.

Chapter 12.64 Restricted Area Initiative Ordinance and Amendments

12.64.010 Restricted area initiative ordinance.

12.64.020 Initiative ordinance amended—June 15, 1937.
12.64.030 Initiative ordinance amendment—February 9, 1956.
12.64.040 Initiative ordinance amendment—February 27, 1962.

CHAPTER 12.04 GENERAL PROVISIONS*

12.04.010 Title.

This title shall be known as the "Long Beach Oil Code." (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 1 (part), 1980: prior code § 3300.1)

12.04.020 Purpose.

It is the intent and purpose of this title to regulate the drilling and redrilling for and the production of petroleum so that these activities may be conducted in conformance with the California Fire Code adopted in Chapter 18.48, State statutes, regulations of the Division of Oil, Gas and Geothermal Resources, in harmony with other City of Long Beach land uses, and to minimize the economic effect of lessening land values in areas wherein drilling and redrilling for the production of petroleum constitutes an activity which is at variance with the predominate land use. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 1 (part), 1980: prior code § 3300.2)

12.04.030 General.

The terms set forth in this Chapter, wherever used in this title, shall have the meanings set forth in this Chapter unless the context requires a different meaning.

Where terms are not defined through the methods authorized by this Chapter, such terms shall have ordinarily accepted meanings such as the context implies. Webster's Third New International Dictionary of the English Language, Unabridged, shall be considered as providing ordinarily accepted meanings. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 1 (part), 1980: prior code § 3300.2.5 (part))

12.04.040 Definitions.

"Abandonment" means the permanent plugging of a well, in accordance with the requirements of the Division of Oil, Gas and Geothermal Resources, the removal of all equipment related to the well, and includes the restoration of the drill sites as required by these regulations.

"A.N.S.I." means the American National Standards Institute.

"A.P.I." means the American Petroleum Institute.

"Approved" means approved by the authority having jurisdiction as defined in this title. "Approved type" or "approved design" means and includes improvements, equipment, or facilities of a type or design approved by the authority having jurisdiction. The authority having jurisdiction under this title, unless otherwise stated in this title, is the Director of the Department of Development Services or his or her designated representative, sometimes referred to in this title as the Director.

"Attended" means the presence of a person who is close enough to petroleum operating facilities so that he or she may reasonably observe the activities of other persons in or near such facilities.

"Blowout" means the uncontrolled discharge of gas, liquids or solids (or a mixture thereof) from a well into the atmosphere.

"Blowout preventer" means a mechanical, hydraulic, pneumatic, or other device or combinations of such devices secured to the top of a well casing including valves, fittings, and control mechanisms connected therewith designed and capable of preventing a blowout.

"Cellar" means an excavation around or above the top joint of the casing of a well.

"Completion of drilling" is deemed to occur for the purpose of this title thirty (30) days after the drilling crew has been released unless drilling, testing, or remedial operations are resumed before the end of the thirty (30) day period.

"Derrick" means any framework, tower or mast together with all the appurtenances to such structure placed over a well for the purpose of raising or lowering pipe, casing, tubing, or other drilling, production or injection equipment out of or into the well.

***Editor's note**—ORD-16-0027 § 1(Exh. A), adopted Nov. 22, 2016, amended Ch. 12.04 in its entirety to read as herein set out. Former Ch. 12.04, §§ 12.04.040—12.04.440, pertained to definitions which have now all been designated and codified as § 12.04.040.

State law reference—Provisions affirming the cities' authority to regulate oil production activities, Pub. Res. Code § 3690.

"Desertion" means the cessation of operations at a drill site without compliance with the provisions of this title relating to suspended operations or abandonment.

"Director" means the Director of Development Services or his or her designated representative.

"Division of Oil, Gas and Geothermal Resources" or "D.O.G.G.R." means the California Department of Conservation, Division of Oil, Gas and Geothermal Resources.

"Drill" or "drilling" means to dig, bore a well, or redrill for the purpose of exploring for, developing, or producing oil, water, gas, or other hydrocarbons or for the purpose of injecting water, steam, or other fluid or substance into the earth, but excluding any well drilled solely for the production of drinking water. Drilling includes all operations through release of drilling crew.

"Drill site" means that surface area used during drilling of an oil or gas well or a well drilled for purposes of secondary petroleum recovery.

"Dwelling unit" means a single unit providing complete, independent living facilities for one (1) or more persons, including permanent provisions for living, sleeping, eating, cooking and sanitation.

"Gas" means the gaseous components or vapors contained in or derived from petroleum or natural gas.

"Guest room" means any room or rooms used or intended to be used by a guest for sleeping purposes. Every one hundred (100) square feet of superficial floor area in a dormitory shall be considered to be a guest room.

"Harbor Board," "Board" or "Board of Harbor Commissioners" means the Board of Harbor Commissioners of the City.

"Harbor district" means the harbor district of the City as defined in the Charter of the City.

"Idle" means the cessation of petroleum operations on a well and equipment incident to such well.

"Lessee" means the possessor of the right to develop and produce petroleum resources.

"Lessor" means the owner of the mineral rights subject to a petroleum lease.

"Maintenance" or "maintain" means the repair and replacement of parts of a structure where same does not alter or lessen the character, strength, or stability of the structure.

"Natural gas processing" means the separation of contaminants and constituents from unprocessed or natural gas for the purpose of producing: (1) natural gas which meets purchase specifications of end users; and (2) marketable extracted products. Among the operations required to accomplish separation may be: gas gathering by pipeline; removal of pipeline dirt; gas compression; gas dehydration; gas sweetening (removal of hydrogen sulfide and carbon dioxide); hydrocarbon liquids removal, recovery, treating and product separation; and nitrogen removal.

"N.F.P.A." means the National Fire Protection Association.

"Oil" means and includes petroleum, and "petroleum" means and includes oil.

"Oil operating areas" means those areas within which drilling and production are allowed under Chapter 12.08. For further particulars, refer to Oil Code Map No. C-216 dated December, 1979 and on file in the Office of the Director.

"Operator" means the person, whether proprietor, lessee, or individual contractor, actually in charge and in control of the drilling, maintenance, and operation of a well or wells.

"Outer boundary line" means the exterior limit of the lands included within a lease or unit comprising several contiguous parcels of land in one (1) or different ownerships which are operated as a single petroleum lease or operating unit. In determining the contiguity of any such parcels of land, no street, road, or alley lying within the lease or unit shall be deemed to interrupt such contiguity.

"Owner," within Chapter 12.32, means the owner of mining rights in land who, in the exercise of those rights, owns or has otherwise acquired the right to occupy the surface of a drill site area to carry on drilling and oil production activities, which activities are or may be the source of noise gov-

erned by Chapter 12.32. In other parts of this title, "owner" shall be defined in the context of the section in which it appears.

"Petroleum" means and includes any and all hydrocarbon substances found in a natural state, including but not limited to crude oil, natural gas, natural gasoline, and other related substances.

"Petroleum lease" means a property right with respect to which a lessee enjoys the right to develop and produce petroleum resources for a determinable period.

"Petroleum operations" means and includes all activities in connection with the exploration and drilling for petroleum and products of petroleum, including secondary and tertiary operations, together with the operation of all equipment and appurtenances incident to such activities and also including natural gas processing.

"Planning Commission" means the City's Planning Commission.

"Redrill" or "Redrilling" means any drilling operation, including deviation from original well bore, to recomplete the well in the same or different zone. The provisions of this title relating to drilling shall also apply to redrilling.

"Remedial" means any work on a well, other than drilling or redrilling.

"Suspended operations" means the suspension of petroleum operations in a well or on the equipment and appurtenances incident to the well.

"Tank" means a structure used in conjunction with either the drilling or production of a well used for holding or storing liquids associated with drilling or producing operations.

"Well" means any hole drilled into the earth for the purpose of exploring for and producing oil or gas, or any hole drilled into the earth on lands producing or reasonably presumed to contain oil or gas, or any hole drilled into the earth for the purpose of injecting fluids or gas for stimulating oil or gas recovery, repressuring or pressure maintenance of oil or gas reservoirs, disposing of oil field waste fluids, or any hole drilled into the earth within or adjacent to an oil or gas pool for the purpose of obtaining water to be used in production, stimulation, or repressuring operations.

"Well servicing" means and includes remedial or maintenance work performed within an existing well.

"Well site" means that surface area used for oil or gas extraction operations or for injection purposes in secondary petroleum recovery operations after drilling is completed. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5935 § 1, 1983; Ord. C-5893 § 1, 1982; Ord. C-5575 § 1 (part), 1980: prior code § 3300.2.5 (part))

CHAPTER 12.08 OIL OPERATING AREAS

12.08.010 Drilling prohibited generally.

Except as in this Chapter otherwise provided, it is unlawful and a nuisance for any person to drill any well, or to erect any derrick or production equipment, or to operate or maintain the same or any thereof, or any portion of any thereof in or upon any real property in the City. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.5)

12.08.020 Permit required.

Except as provided in this Chapter, no petroleum operations shall be carried on in any of the areas set out in this Chapter until a permit, as provided for in this title, has been applied for and issued therefor. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

12.08.030 Area 1—Harbor district central.

Area 1 is that portion of the City bounded as follows:

On the north by the south line of Pacific Coast Highway; on the south by the line of ordinary high tide of the Pacific Ocean; on the east by the west line of the right-of-way of the Los Angeles County flood control district channel of the Los Angeles River; and on the west by the westerly boundary line of the City; to the extent that such drilling, erection, operation and maintenance within the area are not in conflict with that certain initiative ordinance adopted by a vote of the registered

qualified electors of the City at a special municipal election held on the fifteenth (15th) day of June, 1937, pursuant to the provisions of Ordinance No. C-1505, ordinance of the City. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

12.08.040 Area 2—West sixty feet of the flood control channel harbor in district.

Area 2 is the west sixty feet (60′) of the right-of-way of the Los Angeles County flood control district channel of the Los Angeles River, to the extent and in the manner authorized by the judgment in that certain action in the Superior Court of the State, in and for the County of Los Angeles, entitled *"Continental Corporation, a corporation, et al., plaintiffs, vs. City of Long Beach, et al., defendants,"* being action No. 442081 in the files of the Clerk of the Court, and further to the extent and in the manner authorized by judgments in those certain actions in the Superior Court of the State, in and for the County of Los Angeles entitled, *"Continental Southern Corporation, a corporation, et al., plaintiffs, vs. City of Long Beach, a municipal corporation, et al., defendants,"* being action No. 502421 in the files of the Clerk of the Court, and *"Continental Northern Corporation, a corporation, et al., plaintiffs, vs. City of Long Beach, a municipal corporation, et al., defendants,"* being action No. 502422 in the files of the Clerk of the Court. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

12.08.050 Area 3—Tidelands in the harbor district east of the back channel.

Area 3 is that portion of the harbor district of the City lying southerly of the line of ordinary high tide of the Pacific Ocean and easterly of the centerline and its southerly prolongation of the back channel to the Long Beach inner harbor. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

12.08.060 Area 4—Tidelands in the harbor district west of the back channel.

Area 4 is that portion of the harbor district of the City lying southerly of the line of ordinary high tide of the Pacific Ocean and westerly of the centerline and its southerly prolongation of the back channel to the Long Beach inner harbor. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

12.08.070 Area 5—Signal Hill northwest.

Area 5 is that portion of the City as described as follows:

Beginning at the northeasterly corner of Lot 57, Resubdivision of American Heights Tract, as per map recorded in Book 7, page 180, of maps in the Office of the Recorder of the County, said northeasterly corner being in the southerly line of 29th Street (formerly Brandon Street) 50 feet wide, as shown on Map of E. S. Field's Long Beach Heights No. 1, recorded in Book 10, page 196, of maps in the office of said county recorder; thence easterly along the southerly line of 29th Street and the prolongation thereof to a line 90 feet easterly of, measured at right angles and parallel to, the easterly line of Atlantic Avenue, 80 feet wide, said parallel line being the common boundary line between the cities of Long Beach and Signal Hill; thence northerly and easterly along said boundary line to its intersection with the prolongation southerly of the centerline of that portion of Lime Avenue, 60 feet wide, lying north of Wardlow Road; thence northerly along said prolongation and said centerline to the centerline of 35th Street (formerly Chateau Thierry Street), 51 feet in width; thence westerly along said centerline of 35th Street to the prolongation southerly of the easterly line of Lot 10, Block 12, Tract No. 2964, as per map recorded in Book 37, page 35, of maps in the Office of said County Recorder; thence northerly along said prolongation and said easterly line of said Lot 10 to the northeasterly corner of said Lot 10; thence westerly along the northerly line of said Lot 10 and along the prolongation west of said northerly line to the centerline of Atlantic Avenue, 80 feet in width; thence northerly along said centerline of Atlantic Avenue to the prolongation easterly of the northerly line of Lot 17, Block 11, aforementioned Tract No. 2964; thence westerly along said prolongation and along the northerly

line of Lot 1, said Block 11, and the westerly prolongation thereof to the centerline of Linden Avenue, 80 feet wide; thence southerly along the centerline of Linden Avenue to a point in the easterly prolongation of the northerly line of Lot 16, Block 10, aforementioned Tract No. 2964, the same being the most southerly line of 36th Street (formerly Lincoln Avenue), 40 feet wide; thence westerly along said easterly prolongation, said southerly line of 36th Street and its westerly prolongation, to the northwest corner of Lot 1, Block 9, aforementioned Tract No. 2964; thence northwesterly in a direct line to the northeast corner of Fractional Lot 7, Block F, Los Cerritos, as per map recorded in Book 12, pages 198 and 199, of maps in the Office of said County Recorder; thence westerly along the northerly line of Fractional Lot 7 and along the northerly line of Fractional Lot 50, said Block F, aforementioned Los Cerritos, to the northwest corner of Fractional Lot 50, said Block F, said point also being the intersection of the southerly line of 36th Street (formerly Lincoln Avenue), 80 feet wide, and the easterly line of Locust Avenue, 60 feet wide; thence northwesterly in a direct line to the southeast corner of Lot 19, Tract No. 2219, as per map recorded in Book 22, page 41, of maps in the Office of said County Recorder, said point also being the intersection of northerly line of 36th Street and westerly line of Locust Avenue; thence northerly along westerly line of Locust Avenue, 60 feet wide, to the point of intersection with the southerly line of Cameron Place, 60 feet wide, said point being the northeast corner of Lot 1, aforementioned Tract No. 2219; thence northerly in a direct line to the southeast corner of Lot 18, Block B, Tract No. 4921, as per map recorded in Book 53, pages 51 and 52, of maps in the Office of said County Recorder, said point also being the intersection of the northerly line of Cameron Place and westerly line of Locust Avenue; thence northerly along the westerly line of Locust Avenue, 60 feet wide, as shown on map of said Tract No. 4921 to the northeast corner of Lot 42, said Block B, being a point in the southerly line of Bixby Road, 80 feet wide; thence westerly along said southerly line of Bixby Road and its westerly prolongation to the northeast corner of Lot 1, Block C, aforementioned Tract No. 4921, said point being the intersection of the southerly line of said Bixby Road and the westerly line of Weston Place (formerly Pine Avenue), 60 feet wide; thence southerly along the westerly line of Weston Place, 60 feet wide, to the southeast corner of Lot 24, said Block C, said point being the intersection of the westerly line of said Weston Place and the northerly line of Cameron Place, 60 feet wide; thence southerly in a direct line to the northeast corner of Lot 5, aforementioned Tract No. 2219, said point being the intersection of the westerly line of said Weston Place and southerly line of Cameron Place; thence southerly along the westerly line of Weston Place, 60 feet wide, and its southerly prolongation to the point of intersection with the southerly line of 36th Street (formerly Lincoln Avenue), 80 feet wide; thence westerly along the southerly line of 36th Street, 80 feet wide, and its westerly prolongation to the northwest corner of Fractional Lot 156, Block F, aforementioned Los Cerritos, said point also being the intersection of said southerly line of 36th Street with the easterly line of Pacific Avenue, 100 feet wide; thence southerly along the easterly line of Pacific Avenue, 100 feet wide, to the southwesterly corner of Lot 146, Block F, aforementioned Los Cerritos, said point also being the intersection of said easterly line of Pacific Avenue with the northerly line of Wardlow Road, 100 feet wide, as shown on map of said Los Cerritos; thence southerly in a direct line to the northwest corner of Lot 23, Block I, Vista Del Mar Tract No. 2, as per map recorded in Book 10, page 158, of maps in the Office of said County Recorder, said point also being the intersection of the southerly line of Wardlow Road, 100 feet wide, and the easterly line of Pacific Avenue, 100 feet wide; thence southerly along the easterly line of Pacific Avenue, 100 feet wide, to a point in the northerly line of 33rd Street (formerly Del Mar Avenue) 80 feet wide, said point being the southwest corner of Lot 16, said Block I, aforementioned Vista Del Mar Tract No. 2; thence easterly along the northerly line of said 33rd Street, 80 feet wide, to a point in the westerly line of Pine

Avenue (formerly Pacific Boulevard) 120 feet wide, said point being the southeast corner of Lot 1 said Block I, aforementioned Vista Del Mar Tract No. 2; thence southeasterly in a direct line to a point on the easterly line of said Pine Avenue, 120 feet wide, said point also being the southwest corner of Lot 45, Block E, aforementioned Vista Del Mar Tract No. 2; thence southerly along the easterly line of Pine Avenue, 120 feet wide, to a point, said point being the beginning of a tangent curve concave to the northeast and having a radius of 280 feet; thence southeasterly along said curve to a point in the northerly line of 31st Street (formerly Frankfort Street), 120 feet wide; thence easterly along the northerly line of 31st Street, 120 feet wide, to a point, said point being the beginning of a tangent curve concave to the southwest and having a radius of 220 feet; thence southeasterly along said curve to a point on the westerly line of Long Beach Boulevard (formerly American Avenue), 100 feet wide; thence southeasterly in a direct line to a point on the southerly line of 31st Street (formerly Frankfort Street), 60 feet wide, said point also being the northwest corner of Lot 1, Block A, Tract No. 3207, as per map recorded in Book 33, page 7, of maps in the Office of said County Recorder; thence southerly along the westerly line of said Block A, being the easterly line of Long Beach Boulevard (formerly American Avenue), as shown on aforementioned map of Tract No. 3207, to the northerly line of Spring Street, 60 feet wide; thence easterly along the northerly line of said Spring Street, 60 feet wide, and its easterly prolongation to its intersection with the northerly prolongation of the easterly line of the alley, 13 feet wide, west of Atlantic Avenue and south of Spring Street in E. S. Field's Long Beach Heights No. 1, as shown on map recorded in Book 10, at page 196, of maps in the Office of said County Recorder; thence southerly along the easterly line of said alley and its southerly prolongation to a point in the southerly line of 29th Street (formerly Brandon Street), 50 feet wide, thence easterly along the southerly line of said 29th Street, 50 feet wide, to the point of beginning. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

12.08.080 Area 6—Signal Hill, cemetery, north and northeast.

Area 6 is that portion of the City described as follows:

Beginning at the intersection of the north line of Spring Street with the west line of Orange Avenue, said point being in the boundary line of the City of Long Beach; thence southerly along the boundary line of the City of Long Beach and following the various courses of said boundary to the north line of Farm Lot 12, The American Colony Tract as per map thereof recorded in Book 19, pages 89 and 90, miscellaneous records of Los Angeles County; thence easterly along the north line of said Farm Lot 12 to a line 433 feet westerly of the parallel to the easterly line of Farm Lot 7, said The American Colony Tract, thence northerly along said line 433 feet westerly of and parallel to the easterly line of said Farm Lot 7 to a line 50 feet southerly of and parallel to the northerly line of said Farm Lot 7; thence easterly along said line 50 feet southerly of and parallel to the northerly line of said Farm Lot 7 to line 333 feet westerly of and parallel to the easterly line of said Farm Lot 7; thence southerly along said line 333 feet westerly of and parallel to the easterly line of said Farm Lot 7 to the north line of said Farm Lot 12, thence easterly along the north line of said Farm Lot 12, and the easterly prolongation thereof, to the east line of Cherry Avenue; thence northerly along said east line of Cherry Avenue to the south line of Wardlow Road; thence easterly along said south line of Wardlow Road to a point in a line 588 feet easterly from and parallel with the centerline of said Cherry Avenue; thence southerly along said last-mentioned parallel line to the north line of Farm Lot 29; thence easterly 300 feet, along said north line of Farm Lot 29; thence southerly parallel to said centerline of Cherry Avenue to a point in the north line of Spring Street, said point being in the boundary line of the City of Long Beach; and thence westerly along the boundary line of the City to the point of beginning. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

12.08.090 Area 7—Signal Hill, reservoir and southeast.

Area 7 is divided into two (2) parcels, designated as Parcel A and Parcel B, and is that portion of the City described as follows:

Parcel A. Beginning at the intersection of the boundary of the City in Pacific Coast Highway, formerly State Street, with the prolongation northerly of the east line of the alley west of Obispo Avenue, thence easterly along the boundary of the City, and following the various courses of said boundary to the northeasterly line of the Alamitos Tract, as per map recorded in Book 36, pages 37 to 44, miscellaneous records of Los Angeles County, thence southeasterly along said northeasterly line of Alamitos Tract to a line 300 feet east of and parallel to the east line of Termino Avenue; thence south along said parallel line to the north line of Pacific Coast Highway, 100 feet in width, formerly State Street; thence east along the north line of Pacific Coast Highway, 100 feet in width, formerly State Street to a line 180 feet easterly of, measured at right angles, and parallel to, the easterly line of the parcel of land conveyed to the City by deed recorded in Book 4752, page 134, of deeds, records of Los Angeles County (Community Hospital Lands); thence southerly along said parallel line to a line 150 feet south of, measured at right angles, and parallel to, the south line of Pacific Coast Highway, 100 feet in width, formerly State Street; thence west along the last-mentioned parallel line to the west of Termino Avenue to the north line of Fifteenth Street; thence west along the north line of Fifteenth Street to the east line of Redondo Avenue; thence north along the east line of Redondo Avenue to the north line of Ransom Street; thence west along the north line of Ransom Street to the east line of Obispo Avenue; thence north along the east line of Obispo Avenue to the south line of Lot 2, Block 1, Tract No. 1954, as per map recorded in Book 22, pages 110 and 111 of maps, records of the County; thence westerly along the westerly prolongation of the south line of said Lot 2 to the east line of the alley west of Obispo Avenue; and thence north along the east line of said alley and the prolongation thereof to the point of beginning.

Parcel B. Beginning at the center of the inner circle of Los Alamitos Circle, which has a radius of 180 feet, said radial point being 19.41 feet northerly measured at right angles to the centerline of Pacific Coast Highway, formerly State Street, 60 feet in width as shown on map of Alamitos Tract, as recorded in Book 36, pages 37 to 44, both inclusive, miscellaneous records, of the County; thence south 0° 01′ 15″ east from said radial point a distance of 347.00 feet to the true point of beginning of this description; thence south 75° 43′ 28″ east a distance of 272.85 feet to a point in the northerly line of the Outer Circle; thence along said northerly line of the Outer Circle south 29° 18′ 46″ west a distance of 17.44 feet to an intersection with a curve, concave northerly and having a radius of 500 feet, a radial line through said point having a bearing of south 30° 47′ 55″ east; thence westerly along said curve, concave to the north and having a radius of 500 feet a distance 435.66 feet to a point in said curve, a radial line, through said last-mentioned point having a bearing of south 19° 07′ 26″ west, said point being an intersection with a curve, concave to the west and having a radius of 500 feet, a radial line through said last-mentioned point having a bearing of north 87° 12′ 31″ east; thence leaving the northerly line of the Outer Circle and northerly along said last-mentioned curve, concave to the west and having a radius of 500 feet a distance of 127.66 feet to a point in said curve, a radial line through said last-mentioned point having a bearing of north 72° 34′ 48″ east; thence north 89° 58′ 45″ east a distance of 186.27 feet to the true point of beginning. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

12.08.100.1 Area 8—Alamitos Heights and Flats.

Area 8 is that portion of the City described as follows:

Beginning at the intersection of the centerline of Santiago Avenue, 60 feet wide, and the southerly line of Colorado Street, 60 feet wide; thence east along the southerly line of Colorado Street to the boundary line of the City of Long Beach as

established by Increment 11 of annexation to the City of Long Beach, filed with the Secretary of the State of California, December 17, 1923; thence southerly and easterly along the boundary line of the City of Long Beach as established by said Increment 11 and following its various courses to the most southerly corner of Lot 1, Tract No. 1077, as per map recorded in Book 18, page 195 of maps, records of the County; thence northwesterly along the southerly line of said Lot 1 to the intersection of a line 800 feet northeasterly of and parallel to the northeasterly line of the 200-foot right-of-way of the Pacific Electric Railway Company's Newport Beach Line, thence northwesterly along said parallel line to the northwesterly line of Parcel 1 of the property conveyed to the City by deed recorded in Book 4654, page 163, of official records in the Office of the County Recorder, having a bearing of south 74° 39′ 30″ west and a length of 401.30 feet; thence south 74° 39′ 30″ west 95.53 feet to an angle in said Parcel 1; thence south 56° 04′ 30″ west, 167.47 feet to the most westerly corner of said Parcel 1; thence north 56° 04′ 25″ west 311.34 feet to a point in the easterly line of Parcel 2 of said property conveyed to the City; thence south 80° 07′ 11″ west, 102.51 feet to a point in the southwesterly line of said Parcel 2; thence north 21° 42′ 40″ west 309.95 feet along said southwesterly line of Parcel 2 to a point in a curve concave to the south and having a radius of 1884.91 feet, a radial line passing through said point of curve having a bearing of north 3° 43′ 54″ east; thence southeasterly along said curve an arc distance of 503.52 feet to the end of said curve, a radial line passing through the end of said curve having a bearing of north 19° 02′ 14.7″ east; thence south 70° 57′ 45.3″ east 122.99 feet to the centerline of Santiago Avenue, 60 feet wide; and thence northerly along said centerline of Santiago Avenue to the point of beginning. Provided, however, that it is unlawful hereafter to drill any new well or to erect any derrick within that portion of Area 8 described as follows: Beginning at the intersection of the centerline of Santiago Avenue (60 feet wide) with the south line of Colorado Street (60 feet wide); thence east along said south line of Colorado Street to the centerline of Manila Avenue (60 feet wide); thence south 250 feet along said centerline of Manila Avenue; thence west along a line 250 feet south of and parallel to said south line of Colorado Street to the westerly line of Parcel 2 of the land conveyed to the City by deed recorded July 17, 1926, in Book 4653, page 163, of official records in the Office of the County Recorder, thence northwesterly along said westerly line of Parcel 2 to the south line of Colorado Street (60 feet wide); thence east along said south line of Colorado Street to the point of beginning.

Along with:

In the City of Long Beach, County of Los Angeles, State of California, and is described as follows:

Parcels 4, 5 and 6, as shown on Parcel Map No. 19212, as per map filed in Book 260, pages 93 and 94 of parcel maps, in the office of the recorder of said County; except therefrom all oil, gas, petroleum and other hydrocarbon substances conveyed by various instruments both recorded and unrecorded all confirmed and clarified by deed from Fred H. Bixby Ranch Company, a California Corporation, recorded September 16, 1971 as instrument no. 3355, in Book D 5193 Page 959 of official records, which deed recites that the grantees, their heirs, successors and assigns shall have no right to enter upon the surface of the property or use the property or any portion thereof above a plane parallel to and 500 feet below the present surface thereof without the express approval in writing of the grantor. Subject to covenants, conditions, restrictions, reservations, easements and rights-of-way of record if any. (ORD-18-0002 § 1, 2018; ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

Editor's note—Formerly codified as § 12.08.100 which was renumbered by ORD-18-0002.

12.08.110 Area 9—San Gabriel River.

Area 9 is that certain parcel of land being a portion of Lot 2, Tract No. 1077, in the City of Long Beach, as per map recorded in Book 18, page 195 of maps, in the Office of the County Recorder, more particularly described as follows:

Beginning at the intersection of the southwesterly line of said Lot 2 with a line 40 feet northwest-

erly of, measured at right angles and parallel to, the northwesterly right-of-way line of the Los Angeles County flood control district San Gabriel River Channel, 400 feet wide thence northwesterly along said southwesterly line of Lot 2 to the intersection with a line 205 feet northwesterly of, measured at right angles and parallel to, said northwesterly right-of-way of San Gabriel River Channel; thence northeasterly along said parallel line to the intersection with a line 400 feet northwesterly of, measured at right angles and parallel to, said southwesterly line of Lot 2; thence southeasterly along said last-mentioned parallel line to said line 40 feet northwesterly of and parallel to said northwesterly right-of-way line of the San Gabriel River Channel; and thence southwesterly along said line 40 feet northwesterly of and parallel to said northwesterly right-of-way line of the San Gabriel River Channel to the point of beginning. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

12.08.120 Area 10—Signal Hill Water Department lands northeast.

Area 10 is that portion of the City described as follows:

Beginning at the intersection of the southerly line of Farm Lot 45, The American Colony Tract, as per map thereof recorded in Book 19, pages 89 and 90, miscellaneous records of Los Angeles County with a line 390 feet westerly of and parallel to the east line of Temple Avenue, said point of intersection being in the boundary line of the City of Long Beach, thence northerly along said line 390 feet westerly of and parallel to the easterly line of Temple Avenue to the southerly line of Spring Street; thence easterly along said southerly line of Spring Street to a point in a line 660 feet easterly from and parallel with said easterly line of Temple Avenue; thence southerly along said line 660 feet easterly from and parallel with said easterly line of Temple Avenue; thence southerly along said line 600 feet easterly from and parallel with said easterly line of Temple Avenue to a point in a line 290.95 feet northerly from and parallel with the centerline of Willow Street, as per deed recorded in Book 5961, page 93, of deeds, records of Los Angeles County; thence easterly along said line 290.95 feet northerly from and parallel with the centerline of said Willow Street to the southeasterly line of that portion of Rancho Los Cerritos, as per map recorded in Book 2, page 202, of patents, records of Los Angeles County, deeded to the City by deed recorded in Book 4727, page 245, of deeds, records of Los Angeles County, said southeasterly line of that portion of Rancho Los Cerritos being also the northwesterly line of Page 16, Lot 1, Tract No. 10548, as per map recorded in Book 174, page 17, of maps, records of Los Angeles County; thence northeasterly along said northwesterly line of said Lot 1 to the westerly line of Newport Avenue; thence southerly along said westerly line of Newport Avenue to the north line of Willow Street; thence westerly along said northerly line of Willow Street to the aforementioned southeasterly line of Rancho Los Cerritos; thence southwesterly along said southeasterly line of that portion of said Rancho Los Cerritos, deeded to the City of Long Beach, to its intersection with the southerly line of Willow Street, said point of intersection being in the boundary line of the City; and thence southwesterly along the boundary line of the City and following the various courses of said boundary line to the point of beginning in the southerly line of aforementioned Farm Lot 45, The American Colony Tract, 390 feet westerly thereon from the easterly line of Temple Avenue. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

12.08.130 Area 11—Water Department lands, airport central south.

Area 11 is that portion of City described as follows:

Beginning at the intersection of the southerly line of Spring Street with a line 400 feet easterly of and parallel to the centerline of Newport Avenue; thence southerly along said line 400 feet easterly of and parallel to the centerline of Newport Avenue to a point in the southeasterly line of that portion of the Rancho Los Cerritos, as per map recorded in Book 2, page 202, of patents, records of Los Angeles County deeded to the City by deed recorded in Book 4727, page 245, of deeds, records of Los Angeles County; thence southwesterly along said southeasterly line of that portion of said Rancho Los Cerritos to a point in a line 700 feet westerly of and parallel to the centerline of Newport Avenue; thence northerly along said parallel line to the southerly line of Spring Street; and thence easterly along said southerly line of Spring Street to the point of beginning. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

12.08.140 Area 12—Virginia Country Club west.

Area 12 is that portion of the City described as follows:

That portion of Lot 6, Block D, and that portion of Lot 5, Block E, Subdivision of a part of the Rancho San Pedro, as per map recorded in Book 32, pages 97 and 98, miscellaneous records of the County of Los Angeles, more particularly

described as follows: Beginning at the intersection of the Compromise Ranch Line, as per map filed in Book 6, pages 15 and 16, records of surveys, in the Office of the County Recorder, with the southerly right-of-way line of the Union Pacific System private right-of-way; thence south 24° 21′ 17″ east along said Compromise Line 34.50 feet; thence south 34° 04′ 58″ west 456.21 feet; thence south 22° 36′ 48″ west 1,269.48 feet; thence south 72° 19′ 08″ west 268.19 feet; thence south 45° 33′ 33″ west 348.86 feet to a point in the easterly right-of-way line of the Los Angeles River flood control channel, said easterly right-of-way line being a boundary line of the City; thence north 3° 04′ 59″ east 1,420.84 feet along said easterly right-of-way line of the Los Angeles River flood control channel to the southerly right-of-way line of the Union Pacific System private right-of-way; and thence north 67° 08′ 23″ east along said southerly right-of-way line of the Union Pacific System private right-of-way 1,256.41 feet to the point of beginning; excepting therefrom all that portion of said parcel lying westerly of a line 120 feet easterly of and parallel to the easterly right-of-way line of the Los Angeles River flood control channel, and all that portion of said parcel lying northerly of a line 120 feet southerly of and parallel to the southerly right-of-way line of the Union Pacific System private right-of-way. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

12.08.150 Area 13—Flood control, Del Amo south.

Area 13 is that portion of the City described as follows:

That portion of Lot 5, Block D, Subdivision of a part of the Rancho San Pedro, as per map recorded in Book 32, pages 97 and 98, miscellaneous records of the County, more particularly described as follows: Beginning at the intersection of the southerly line of said Lot 5 with the westerly line of Tract No. 3554, as per map recorded in Book 38, pages 44 and 45, of maps, records of the County of Los Angeles; thence westerly along said southerly line of said Lot 5 to the easterly right-of-way line of the Los Angeles River flood control channel, said easterly right-of-way line being a boundary line of the City; thence northerly along said easterly right-of-way line of the Los Angeles River flood control channel to its intersection with the westerly line of aforementioned Tract No. 3554; and thence southerly along the westerly line of said Tract No. 3554 to the point of beginning; excepting therefrom all that portion of said parcel lying westerly of a line 120 feet easterly of and parallel to the easterly right-of-way line of the Los Angeles River flood control channel. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

12.08.160 Area 14—Airport central and west.

Area 14 is that portion of the City described as follows:

The southerly 300 feet of the northerly 340 feet of the easterly 410 feet of Farm Lot 8 and the southerly 300 feet of the northerly 340 feet of the westerly 1,070 feet of Farm Lot 9, and the northerly 300 feet of Vine Avenue (vacated) all in The American Colony Tract, as per map thereof recorded in Book 19, pages 89 and 90, miscellaneous records of Los Angeles County. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

12.08.170 Area 15—Airport northwest.

Area 15 is that portion of the City described as follows:

The southerly 200 feet of Lot 48, and the southerly 200 feet of the westerly 100 feet of Lot 49, all in Tract No. 8084, as per map thereof recorded in Book 171, of maps, pages 24 to 30 inclusive, records of Los Angeles County. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

12.08.180 Area 16—Willow and Lakewood.

Area 16 is that portion of the City described as follows:

Beginning at the intersection of the centerline of Lakewood Boulevard with the centerline of Willow Street; thence north 0° 05′ 53″ east along the centerline of Lakewood Boulevard a distance

of 745.53 feet; thence westerly at right angles to said centerline of Lakewood Boulevard to a point in a line 66 feet westerly of, measured at right angles and parallel to, the centerline of said Lakewood Boulevard, said point being true point of beginning of this description; thence south 0° 05′ 53″ west a distance of 100.53 feet; thence south 34° 33′ 48″ west a distance of 106.39 feet to the beginning of a tangent curve concave to the northwest and having a radius of 155.00 feet; thence southwesterly along said curve a distance of 180.34 feet to line tangent; thence north 78° 46′ 20″ west a distance of 492.63 feet to the beginning of a tangent curve concave easterly and having a radius of 145.00 feet; thence northwesterly and northeasterly along said curve through an angle of 180° 00′ 20″ a distance 455.54 feet to a line tangent; and thence south 78° 46′ 00″ east a distance of 657.68 feet to the true point of beginning of this description. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

12.08.190 Area 17—Airport west.

Area 17 is that portion of the City described as follows:

That portion of the Rancho Los Cerritos as per map recorded in Book 2, page 202, of patents, in the Office of the County Recorder more particularly described as follows:

Beginning at a point on the southerly line of that certain railroad right-of-way, 20 feet wide, marked "not a part of this Subdivision" on map of Tract No. 8084 as recorded in Book 171, pages 24 to 30 inclusive, of maps in the Office of said County Recorder, said point being the northwesterly corner of that certain parcel vested in the City by final order of condemnation recorded in Book 27785, page 47, official records in the Office of said County Recorder; thence south 0° 02′ 35″ east along the westerly line of said condemnation parcel 5.00 feet to a point on the southerly line of an easement for the construction and maintenance of slopes, as granted to Los Angeles & Salt Lake Railroad Company by deed recorded in Book 6753 page 323, official records, last said point being the true point of beginning; thence south 89° 57′ 25″ west 150.00 feet along the southerly line of said easement; thence south 0° 02′ 35″ east 200.00 feet; thence north 89° 57′ 25″ east 200.00 feet; thence north 0° 02′ 35″ west 200.00 feet; thence south 89° 57′ 25″ west 50.00 feet to the true point of beginning. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

12.08.200 Area 18—Recreation Park.

Area 18 is that portion of the City described as follows:

That portion of Lot A, Tract No. 5884, in the City as per map recorded in Book 62, page 38 of maps in the Office of the County Recorder, more particularly described as follows: Beginning at the southeast corner of Block 131 of the Alamitos Tract as shown on said map; thence south 43° 53′ 45″ east 41.63 feet, along the westerly line of said Tract No. 5884, to the centerline of Seventh Street; thence north 89° 59′ 29″ east 1,506.08 feet, along the centerline of the public thoroughfare known as Seventh Street; thence North 0° 00′ 31″ west, 190 feet, at right angles to last said centerline, to the true point of beginning of this description; thence continuing north 0° 00′ 31″ west, 150.00 feet; thence north 89° 59′ 29″ east, 290.40 feet; thence south 0° 00′ 31″ east, 150.00 feet; thence south 89° 59′ 29″ west, 290.40 feet to the true point of beginning. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

12.08.210 Area 19—Airport central and east.

Area 19 is that portion of the City described as follows:

That portion of Lot 52, Tract No. 8084, as per map recorded in Book 171, pages 24 to 30 inclusive, of maps in the Office of the County Recorder, as more particularly bounded and described, using bearings based on the California Coordinate System Zone VII, as follows:

Beginning at a point marked by City monument No. 2906, a brass cap in concrete, having Zone VII coordinates of north 4,046,563.79 and east 4,244,900.30, said point being at the intersection of the westerly prolongation of the southerly

line of said Lot 52 with the centerline of vacated Lakewood Boulevard and being formerly marked by City monument No. 1848; thence north 89° 51′ 04″ east to and along the southerly line of the aforesaid Lot 52,400.00 feet; thence north 0° 06′ 03″ east, 323.00 feet to the true point of beginning; thence north 0° 06′ 03″ east, 344.12 feet; thence south 25° 20′ 33″ east, 146.01 feet; thence south 58.75 feet; thence south 49° 00′ 00″ west 102.13 feet; thence south 0° 06′ 03″ west, 6.24 feet; thence west 330.00 feet more or less to the true point of beginning. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

12.08.220 Area 20—Signal Hill, cemetery and north.

Area 20 is that portion of the City described as follows:

Beginning at the intersection of the north line of Willow Street with the west line of Orange Avenue, said point being in the boundary of the City; thence westerly along the boundary of the City, and following the various courses of said boundary, to its intersection with the east line of Walnut Avenue; thence east along the easterly prolongation of the last preceding course of said boundary line to a line 150 feet west of and parallel to the west line of Cherry Avenue; thence south along said parallel line to the north line of Spring Street, being a boundary line of the City; thence westerly along said boundary line and following its various courses to the point of beginning. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

12.08.230 Area 21—Signal Hill reservoir district.

Area 21 is that portion of the City described as follows:

Beginning at the intersection of the southwesterly line of Alamitos Boulevard with a line 150 feet north of and parallel to the north line of Pacific Coast Highway (said southwesterly line of Alamitos Boulevard being also a boundary line of the City) thence northwesterly along said boundary of the City, and following the various courses of said boundary, to the northeasterly line of the Alamitos Tract, as per map recorded in Book 36, pages 37 to 44, miscellaneous records of Los Angeles County; thence southeasterly along said northeasterly line of Alamitos Tract to a line 300 feet east of and parallel to the east line of Termino Avenue; thence south along said parallel to a line 150 feet north of the aforesaid line 150 feet north of and parallel to the north line of Pacific Coast Highway; thence west along said parallel line to the point of beginning. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

12.08.240 Area 22—Amusement park.

Area 22 is that portion of the City described as follows:

Beginning at the southwest corner of Lot 1, Block E of the Strand No. 3, as shown on map recorded in Map Book 11, page 199 of maps, official records of said County; thence south along the Sly, prolongation of the west line of said Lot 1, Block E, 108.00 feet to a point being the true point of beginning for this description; thence continuing north 89° 52′ 12″ east 85.00 feet to a point; thence due south 260.00 feet to a point; thence south 89° 52′ 12″ west 85.00 feet to a point; thence due north 260.00 feet to the true point being located south of West Seaside Boulevard (96 South Chestnut Place). (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

12.08.250 Area 23—Flood control—San Diego Freeway.

Area 23 is that portion of the City described as follows:

Beginning at an angle point in the boundary line of the City as same existed July 1, 1965, and being the most northerly corner of ″Increment 48,″ Annexations of the City of Long Beach, filed with the Secretary of State on October 9, 1944 and the County Recorder on October 19, 1944; thence south 41° 52′ 37″ west, along said boundary line, 651.34 feet; thence north 15° 51′ 40″ west 806.75 feet to the most easterly corner of that certain parcel of land described in deed to Dominguez

Estate Company recorded in Book D2313, page 982 of official records of said County Recorder; thence along the easterly line of said certain parcel of land north 10° 41′ 04″ west 810.51 feet to the most northerly corner of said certain parcel of land; thence north 3° 16′ 34″ east 73.35 feet along the westerly line of that certain parcel of land described as Parcel 1 in deed to the State recorded in Book 50974, page 160 of said official records to the northerly line of said last-mentioned certain parcel of land, thence northerly in a direct line to the southwesterly corner of that certain parcel of land described in the deed to the State recorded in Book D422, page 703 of said official records; thence northerly in a direct line to the most northerly corner of said last-mentioned certain parcel of land; thence northerly along a curve concave easterly and having a radius of 4,068.00 feet in the westerly line of a strip of land, 200 feet wide, described in Parcel 1 of the deed to the State recorded in Book 39027, page 384 of said official records to the southerly terminus of that certain course having a bearing of north 12° 52′ 00″ east in said last-mentioned westerly line; thence north 12° 52′ 00″ east along said last-mentioned westerly line to its intersection with the northeasterly line of the Pacific Electric Railroad right-of-way, 120.00 feet in width, as shown on map filed in Book 75, page 2 of record of surveys in the office of said Recorder; thence southeasterly along said northeasterly line of the railroad right-of-way as shown on County Surveyor's Map C-S B-181 to the intersection of the northwesterly line of Terrylynn Place and the southwesterly line of Del Mar Avenue, said intersection being a point in the boundary line of the City as same existed July 1, 1965; thence along said boundary line of 1965, southeasterly, westerly and northerly along its various courses to the point of beginning. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.6 (part))

12.08.255 Area 24—Bellflower oil drill site.

Area 24 is that portion of the City described as follows:

In the City of Long Beach, County of Los Angeles, State of California, being that portion of the West Half of Section 1, T5S, R12W, San Bernardino Base and Meridian, described as follows:

Beginning at a point in the Los Angeles-Orange County line at the northerly terminus of that certain course shown on the map entitled ″Exhibit ″A″, Superior Court Case No. 638660, *the City of Los Angeles, a Municipal Corporation, and the Department of Water and Power of the City of Los Angeles, Plaintiffs, versus E.A. Bryant, Jr., et al., Defendants,* said course having a bearing and distance of S16° 46′ 45″E and 1,444.82 feet; thence along said course and County line S16° 46′ 45″E, 1,020.00 feet; thence departing said County line at right angles S73° 13′ 15″W 160.00 feet; thence northwesterly parallel to said County line N16° 45′ 45″W 1,020.00 feet; thence N73° 13′ 15″E a distance of 160.00 feet to the point of beginning. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-7838 § 1, 2003)

12.08.257 Area 25—2nd St. and Studebaker Road drill site.

Area 25 is that portion of the City described as follows:

A portion of Parcel 3 of City of Long Beach Lot Line Adjustment no. 9704-08, recorded December 12, 1997 as Instrument no. 97-1958951, official records of Los Angeles County, California, being a portion of the east one-half of section 2, township 5 south, range 12 west, in the Rancho Los Alamitos, as shown on partition map recorded in Book 700, page 141 of deeds, in the office of the Los Angeles County Recorder, described as follows:

Beginning at the southwest corner of said parcel 5, being the southwest corner of said east one-half of section 2, and being the centerline intersection of Westminster Avenue (100 feet wide) and Studebaker Road (100 feet wide); thence north 00° 10′ 03′east, along the westerly line of said parcel 3, being the westerly line of said east one-half of section 2, and also being said centerline of Studebaker Road, a distance of 400.00 feet, thence south 89° 50′ 17″ east, a distance of 493.10 feet; thence south 64° 14′ 06″ east, a distance of 75.63

feet; thence south 00° 52′ 38″ west, a distance of 367.39 feet, to the southerly line of said parcel 3, being the southerly line of said east one-half of section 2, and also being said centerline of Westminster Avenue. Thence north 89° 60′ 17″ west along said southerly line and said centerline, a distance of 556.57 feet, to the point of beginning. (ORD-18-0002 § 2, 2018)

12.08.260 Boundary change—General.

To change an area boundary or create or delete an oil operating area shall require City Council action in accordance with the procedures of Sections 12.08.260 through 12.08.320. However, the City Council shall not act prior to receiving a recommendation thereon from the Planning Commission. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.7(a))

12.08.270 Boundary change—Initiation.

Authority to initiate a change in an area boundary or create or delete an oil operating area shall be vested in the City Council (by minute order), in the Director (by transmittal to the Planning Commission), or by application to the Planning Commission through the Director made by the owner of surface drilling rights in the area encompassed by the creation, addition or deletion, or by the agent of such owner. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.7(b))

12.08.280 Boundary changes—Notice.

Notice of the public hearing shall be provided by mailing a notice to all owners of property within three hundred feet (300′) of the subject drilling site and by posting on the site. The owner of the properties entitled to receive shall be as provided on the latest equalized assessment roll of the County. The notice(s) to be posted shall be posted within ten feet (10′) of any street property line and shall be provided on each street frontage with not less than one (1) notice posted for each three hundred feet (300′) of street frontage and equally spaced along the frontage. If no street frontage exists, one (1) notice shall be posted at a conspicuous location on the site. Notices shall be mailed and posted not less than ten (10) days prior to the hearing date. Failure of any property owner to receive or failure of any member of the public to see the notice shall not invalidate any action taken on a request. Failure to mail notices or failure to post notices shall result in continuance of the hearing. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.7(c))

12.08.290 Boundary change—Planning Commission recommendation.

Within thirty (30) days following a Planning Commission action to recommend a change in an area boundary or to create or delete an oil operating area that recommendation shall be transmitted to the City Clerk for presentation to the City Council. Such recommendation shall give the reasons therefor and shall also disclose whether the decision has been concurred in by all the members of the Planning Commission who are in attendance at the hearing, and in the event the decision has not been concurred in by all such members, the view of the minority of such members shall also be disclosed, except that any action to deny a proposed change to the area boundary or to create or delete an oil operating area need not be transmitted unless the request was initiated by the City Council. A recommendation to deny a change, creation, or deletion may be appealed to the City Council. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.7(d))

12.08.300 Boundary change—Appeal of Planning Commission denial.

The private applicant requesting a change, creation, or deletion may appeal to the City Council the Planning Commission′s recommended denial by filing an appeal with the City Clerk within ten (10) days after the Commission′s action. Upon receipt of an appeal, the City Clerk shall notify the Director and request the transmittal of the Planning Commission′s recommendation to the City Council. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.7(e))

12.08.310 Boundary change—Council action required.

Upon receipt of the recommendation of the Planning Commission, the City Clerk shall set a time for consideration of the matter by the City Council and shall notify the Planning Commission, through the Director and the private applicant, where applicable, of the date and time of such hearing. The Planning Commission may delegate to the Director authority to orally present the Planning Commission recommendation. The decision of the City Council shall be final. Any action by the City Council which concurs with the Planning Commission recommendation shall require a simple majority of the Councilmembers present. Any action by the City Council which overrules a Planning Commission recommendation shall require a two-thirds (2/3) majority of the full Council. If the Council fails to arrive at a decision, the proposal or request shall automatically be continued to the next regularly scheduled Council meeting. The failure of the Council to reach a decision at the subsequent hearing shall be deemed an approval of the Planning Commission′s recommendation. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.7 (f))

12.08.320 Boundary change—Findings required.

In all cases the Planning Commission and the City Council shall be required to make the following findings of fact before changing the boundary of, creating or deleting an oil operating area:

A. The change, creation or deletion will not adversely affect the character, livability or appropriate development of surrounding community;

B. The change, creation or deletion is necessary to produce the petroleum envisioned to be produced from the site, and the petroleum cannot feasibly be reproduced from other sites within oil operating areas by unitization or production agreements, slant drilling or other mechanism; and

C. The change, creation or deletion will not unreasonably hinder production of existing petroleum reserves. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.7 (g))

CHAPTER 12.12 PERMITS

12.12.010 Drilling permit—Required.

No person shall drill or redrill any well without first obtaining a permit therefor from the Director. This permit shall be designated as a drilling permit. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.8)

12.12.020 Well permit—Required.

No person shall operate or maintain any well for petroleum operations, whether active or suspended, without obtaining a permit therefor from the Director. This permit shall be designated as a well permit. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.9)

12.12.030 Drilling permit—Departmental approval required.

No person shall be issued a drilling permit until it has been approved by the Director and, when the proposed work is situated in the Harbor District, the Board of Harbor Commissioners. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.10)

12.12.040 Transfer.

No permit issued under this Chapter may be assigned or otherwise transferred without first providing written notification to the Director and, in the harbor district, the Board of Harbor Commissioners; and any such assignment or transfer made or attempted to be made without such written notification shall be null and void and is without any force or effect whatsoever. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.11)

12.12.050 Drilling permit—Application contents.

Any applicant for a drilling permit shall file with the Director an application in writing on a form furnished for that purpose by the Director. The application shall be accompanied by:

A. A legal description of the oil and gas lease (mining rights) area and the surface operations area within which the applicant proposes to conduct petroleum operations;

B. A plot plan showing the setback areas, surface location of the proposed well, existing and proposed tanks, wells, fences, and other facilities and appurtenant structures, and their relation to any existing hospital, sanitarium, church, rest home, school or dwelling unit or guest room within the distances set forth in this title. The applicant shall not be required to file any plot plan for any well whose surface location is located within an area for which a plot plan has been previously filed unless existing tanks, fences, or other facilities and appurtenant structures are to be relocated or new tanks, fences, or other facilities and appurtenant structures are proposed. A setback shall be provided which will allow all vehicles entering or leaving the drill site to stop or park without extending into the public street or right-of-way;

C. A verified statement signed by the applicant certifying that he or she is duly authorized by the operator to make and file the application and that he or she has read the application and that it is true and correct to the best of his or her knowledge and belief;

D. A certification that the means or method by which liquid spills will be removed from diked areas or catchment basins will conform to the regulations of the D.O.G.G.R.;

E. Prescribed street route to be used by applicant for access to and from drill site for equipment exceeding in size a three-quarter (3/4) ton vehicle;

F. Such other information as may be reason-

ably required by the Director. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.12)

12.12.060 Special conditions—Generally.

In addition to any conditions that are required by other provisions of this title, the Director shall impose the condition or conditions set out in Sections 12.12.060 through 12.12.080 to any permit required under the provisions of this Chapter in oil operating areas 5, 6, 7A, 7B, 8, 9, 12, 13, 16, 18, 19, 21, 22, 23, and 24, and the violation of any of such condition or conditions which shall relate to any or all of the following shall be grounds for revocation of the permit issued:

A. Pipelines. All off-site pipelines serving the site shall be buried below the surface of the ground.

B. Sanitary Facilities. Sanitary facilities shall be installed at any drill site where personnel are permanently stationed. Portable sanitary facilities shall be provided wherever crews are temporarily employed.

C. Lights. All lights shall be shielded or directed so as to confine direct rays to the drill site.

D. Vibration. Vibration from equipment shall be kept to a minimum level, and in such cases as it is required, vibration-dampening equipment of the best available technology shall be installed so as to reduce vibration to a minimum.

E. Painting of Installations. All surfaces of permanent installations within the site shall be painted a neutral color.

F. Signs.

1. Well and Operator Identification Signs. Each well location shall have posted in a conspicuous place on or near such on-site tank or tanks and on well enclosure fence a clearly visible, legible, permanently affixed and weather-resistant sign with the name of the owner or operator, name and number of the lease, the well name and the telephone number where a responsible person can be reached at any time. Well site or sites enclosed with a perimeter fence shall have posted additional signs at or near the entrance or entrances to the site or sites. Signs shall have letters not less than one and one-half (1-1/2) inches in height and contrasting color with the background. Signs shall be maintainted on the premises from the time materials are delievered for drilling purposes until the well or wells are plugged and abandoned.

2. Prohibited Signs. All other signs that are visible from outside of the site or sites shall be prohibited.

EXCEPTIONS:

a. Such signs as required by this title or by law;

b. Warning signs; or

c. No trespassing signs.

G. Hours of Operation. All site work, operation of any tools or equipment used for the construction, alteration, repair, remodel, drilling, demolition, delivery of equipment or materials attendant to the preparation of a new drill, site maintenance or any other related oil site activities that produce loud or unusual noise which annoys or disturbs a reasonable person of normal sensitivity are permitted only between the days and hours listed below:

• Weekdays and Federal Holidays:	Between the hours of 7:00 a.m. and 7:00 p.m.
• Saturdays:	Between the hours of 9:00 a.m. and 6:00 p.m.
• Sundays:	Prohibited

EXCEPTION: Except in case of emergency work that is required to avert a disaster at the well site or off-site piping associated to the well operation.

H. Storage of Equipment. All equipment or material related to the drilling or redrilling of any well shall be stored within a fenced area of the drill site. There shall be no storage of material, equipment, machinery or vehicles which is not either intended for the prompt use in connection with the petroleum operations at the drill site or for the convenience of personnel working at the site. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.13 (a))

Editor's note—Formerly codified as § 12.12.070. ORD-16-0027 deleted the former § 12.12.060 entitled "Special conditions—Imposed," which derived from: Ord. C-5575 § 2 (part), 1980; and : prior code § 3300.13 (part).

12.12.070 Special conditions—Drilling or redrilling operations.

A. Delivery of Equipment. The delivery or removal of equipment or material from the drill site shall be limited to the hours as indicated in Subsection 12.12.060.G, except in case of emergency.

B. Fencing. Within sixty (60) days of commencement of drilling operations, the drill site and all installations thereon shall erect a fence not less than six feet (6′) in height and not comprised of barbwire, unless action has been initiated by the operator to abandon the well(s) according to the procedures established in this title. Fencing required under this Subsection shall otherwise conform to the regulations of the D.O.G.G.R. as set forth in Title 14, Division 2, Chapter 4, Subschapter 2, Article 3, Section 1778, of the California Code of Regulations.

Setbacks for such fencing shall be twenty feet (20′) from the street frontage front drill site line, and five feet (5′) from the street frontage side drill site line on a corner lot. Such fencing shall be constructed of solid masonry or solid wood walls with solid gates or an alternate material equally as effective in concealing oil operations. Fencing required under this Subsection shall be painted a neutral color compatible with the immediate surrounding area. Such fencing shall be maintained in a neat and orderly condition. Chain-link fence with opaque material inserted between the links does not comply with the requirements of this Subsection.

The foregoing fencing requirement for solid masonry walls, solid wood, or an equally effective alternate does not apply to drill sites where the only requested activity is for redrilling of a well or wells only for the purpose of maintaining the original bore or bores.

C. Landscaping and Irrigation. Within sixty (60) days of commencement of drilling operations all areas outside the drill site fence shall be landscaped and an irrigation system installed to maintain the landscaping, unless action has been initiated by the operator to abandon the well(s) according to the procedures of this title. Such landscaping and irrigation shall be in compliance with a landscape plan on file and approved by the Director prior to issuance of the drilling permit and shall thereafter be maintained in a neat and healthy condition. The minimum landscaping shall consist of one (1) tree of not less than fifteen (15) gallon size for each one hundred (100) square feet of area outside the drill site fence; three (3) shrubs for each tree and suitable groundcover. The foregoing provisions of this Subsection requiring submittal and implementation of a landscaping plan and irrigation system and minimum landscaping requirements do not apply to drill sites where the only requested activity is for redrilling of a well or wells only for the purpose of maintaining the original bore or bores.

D. Off-site Improvements. Concurrently with the filing of the landscape and irrigation plans, all applicants for drilling permits shall file an off-site improvement plan for curbs, gutters, and sidewalks. Said improvements shall be designed according to the specifications of the City Engineer. Such improvements shall be in place within sixty (60) days after the commencement of drilling operations. The provisions of this Subsection do not apply to drill sites where the only requested activity is for redrilling of a well or wells only for the purpose of maintaining the original bore or bores. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.13 (c))

12.12.080 Special conditions—Petroleum operations.

A. Removal of Petroleum. When pipeline connections are available, petroleum produced at the well site may be removed by underground pipeline or pipelines. Petroleum produced at well sites where pipeline connections are not available shall be removed by truck. Such trucking shall be restricted to the Hours of Operations as indicated in Subsection 12.12.060.G.

B. Tanks. The number of tanks shall be kept to a minimum and new tanks shall be installed so that the height of the tank does not exceed sixteen feet (16′) above grade.

C. Process Operations. The only process operations permitted at the well site is the dehydration of crude oil and wet gas produced from the well and those process operations required for injection purposes unless otherwise required by the D.O.G.G.R.

D. Flaring or Venting. Gas shall not be vented to the atmosphere, nor burned by open flame, unless prior approval therefor is obtained from the D.O.G.G.R.

E. Well Servicing. Except in case of emergency, well servicing operations shall be restricted to the Hours of Operaitons as indicated in Subsection 12.12.060.G.

F. Fencing. For renewal of well permits for wells existing prior to July 1, 1980, such wells shall be enclosed with a chain-link fence in accordance with Section 12.28.030 or with approved alternate fencing prior to renewal of a well permit. For well permits issued subsequent to July 1, 1980, the chain-link fence shall have opaque material of a neutral color approved by the Director inserted between the chain links. The Director may approve a fence of alternative material more effective in concealing the oil operations provided that it is compatible with the surrounding residential neighborhood. All existing masonry walls or alternate fencing that were constructed as a condition for drill permits shall remain in place. Fencing shall not be less than six feet (6′) in height and shall be maintained in a neat and orderly condition.

G. Landscaping. No well permit shall be issued unless landscaping is installed and maintained to screen and buffer the full perimeter of the well site from adjoining nonindustrial zoned properties. Such landscaping shall be in conformance with the landscape plan submitted to the Director. The approved landscape plan shall include sufficient tree and/or shrub plantings to screen and buffer the well site to the satisfaction of the Director. Further, such landscaping and landscape plan shall include suitable groundcover sufficient to prevent erosion and weed growth within the landscaped area, if necessary, given the shape or topography of the site. The landscaping requirements of this Section shall not apply to any site outside of the Coastal Zone which, upon the effective date of this ordinance, is effectively screened by a solid wooden fence or masonry wall and the existing screening prevents the planting and maintenance of the required landscaping.

H. Additional Requirements for Well Sites in the Coastal Zone. In recognition of the fact that the Coastal Zone is a unique asset of the State and in order to preserve and enhance the quality of this asset, the requirements set forth in these regulations for drilling and redrilling operations relating to fencing, landscaping and irrigation, and off-site improvements, Subsections C, D and E of this Section, shall be implemented at all well sites located in nonindustrial zones of the Coastal Zone.

I. Oil Separation and Oil Field Waste Disposal Facilities. All oil separation and oil field waste disposal facilities shall provide the following public improvements and screening, or cease operations, within one (1) year of the effective date of this provision:

1. Install curbs, gutters, sidewalks, street trees and roadway improvements, to the center line of the adjoining roadway, to the satisfaction of the Director of Public Works, as would be required of a new residential subdivision;

2. Install a visually solid fence, not less than six feet six inches (6′-6″) in height, including visually solid gates, set back not less than six feet six inches (6′-6″) from the public right-of-way; and

3. Install landscaping in the setback area between the screen fence and the public right-of-way, to the satisfaction of the Director, with not less than one (1) twenty-four inch (24″) box and seven feet (7′) in height tree for each one hundred (100) square feet of setback area, and three (3) shrubs for each tree, and groundcover sufficient to prevent erosion and weed growth. Substitutions of plant materials shall be allowed according to the provisions of Subsection 21.42.040.D. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-7347 § 1, 1995; Ord. C-5990 § 1, 1983; Ord. C-5575 § 2 (part), 1980: prior code § 3300.13(d))

Editor's note—Former § 12.12.080 was entitled ″Special conditions—Drill site preparation,″ which derived from: Ord. C-5575 § 2

(part), 1980; and prior code § 3300.13(b), has been deleted. With the inclusion of ORD-16-0027 all remaining sections of Ch. 12.12 have been renumbered accordingly, as herein set out.

12.12.090 Special conditions variance—Authorized.

The operator may request a variance to the special conditions contained in Sections 12.12.060 through 12.12.080 and/or acoustical blanket requirements provided in Section 12.32.030, except the requirements for sanitary facilities and the restrictions on process operations and gas flaring or venting. A filing fee as prescribed by City Council resolution for a standards variance shall accompany each application. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.14 (part))

12.12.100 Special conditions variance—Hearing Examiner.

The position of special conditions Hearing Examiner is established to hear and decide requests for variances from the special conditions required in Sections 12.12.060 through 12.12.080. The Hearing Examiner shall be appointed by the Director. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.14(a))

12.12.110 Special conditions variance—Hearing.

Any request for a variance from the special conditions of this Chapter shall be considered in a public hearing by the Hearing Examiner. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.14(b))

12.12.120 Special conditions variance—Notice.

Notice of the public hearing shall be provided by mailing a notice to all owners of property within three hundred feet (300′) of the subject drill site and by posting on the site. If less than ten (10) property owners own property within three hundred feet (300′) of the subject site, then the radius of notice shall be expanded to include the ten (10) property owners nearest the site. The owner of the properties shall be entitled to receive notice as provided on the latest equalized assessment roll of the County Assessor. The notice(s) to be posted shall be posted within ten feet (10′) of any street property line and shall be provided on each street frontage with not less than one (1) notice posted for each three hundred feet (300′) of street frontage and equally spaced along the frontage. If no street frontage exists, one notice shall be posted at a conspicuous location on the site. Notices shall be mailed and posted not less than ten (10) days prior to the hearing date. Failure of any property owner to receive or of any member of the public to see the notice shall not invalidate any action taken on a request. Failure to mail notices or failure to post notices shall result in a continuance of the hearing. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.14(c))

12.12.130 Special conditions variance—Hearing Examiner action.

The Hearing Examiner may approve, approve with conditions, partially approve, deny or refer any request to the Planning Commission for action without prejudice. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.14(d))

12.12.140 Special conditions variance—Findings required.

A variance from the special conditions may be granted by the Hearing Examiner, or by the Planning Commission, only if the following findings of fact are made:

A. The variance will not adversely affect the character, livability, or appropriate development of abutting properties or the surrounding area and will not be detrimental to the public welfare;

B. There are unique physical circumstances directly related to the variance request that differentiate the subject drill site from other drill sites in the same area;

C. Strict compliance with the special conditions would create an unreasonable economic hardship or a physically infeasible requirement due to the unique circumstances of the drill site; and

D. The variance will not conflict with the regulations of the D.O.G.G.R. Any action to approve a variance request shall require written findings to be issued prior to the effective date of this variance. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.14(e))

12.12.150 Special conditions variance—Appeal.

The decision of the Hearing Examiner may be appealed to the Planning Commission pursuant to the following provisions:

A. Time Limit. An appeal must be accompanied by a statement specifying the reasons therefor and must be filed within ten (10) days after the public hearing or within ten (10) days of the issuance of the findings, whichever is later.

B. Right to Appeal. Besides the applicant, any aggrieved person may file an appeal.

C. Filing. An appeal shall be on a form provided by the Department of Development Services and shall be filed with the Department of Development Services within the specified time limit. A fee shall accompany an appeal filed by the variance applicant as established by the City Council.

D. Public Hearing. Upon filing of an appeal, a public hearing shall be held within thirty (30) days from the filing date. Notice of the hearing on appeal shall be sent to interested parties who have contacted the Hearing Examiner and requested notice of the hearing on appeal.

E. Actions. The decision of the Planning Commission shall be final and shall be in writing and mailed to the applicant, the appellant (if other than the applicant), and any other interested parties who have requested such determination. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.14(f))

12.12.160 Other permits.

Any work for which a permit is required, and which is not covered in this Chapter, shall be done pursuant to such permit issued according to the provisions of the Long Beach Municipal Code. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.15)

12.12.170 Drilling permit—Fees.

Each person applying for a drilling permit shall, at the time of filing the applicant therefor, pay to the Director a nonrefundable permit fee, as set forth by City Council resolution, for each well for which such permit is desired. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.16)

12.12.180 Well permit—Fees.

Any person who is an operator of any well shall pay a nonrefundable annual well permit fee as set forth by City Council resolution for each well operated and maintained by such person. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.17)

12.12.190 Term.

Any well permit issued according to the provisions of this Chapter shall expire one (1) year from date of issuance, or as set forth by City Council resolution, and any and all privileges granted pursuant to such permit shall terminate, unless the permittee has renewed the permit or has pursuant to a drilling permit commenced drilling or redrilling operations within the year following the date of issuance of the permit. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.18)

12.12.200 Fees—Delinquency penalty.

If any fee required to be paid to the Director in this Chapter is not paid within thirty (30) days from the time it becomes due and payable, the same shall thereupon become delinquent, and a penalty in an amount equal to twenty-five percent (25%) of the fee shall be added thereto for such delinquency, which penalty shall be and become part of such fee and shall be enforced and collected as part of such fee. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.19)

12.12.210 Fees—Constitutes lien.

Each and all of the fees required by this Chapter to be paid to the Director shall constitute a lien

upon the well and related production equipment for which permits provided for in this Chapter are required, and upon the property on which the well is situated. The lien for any fee for the drilling permit shall attach when the work is commenced in connection with the operation for which the permit is required, and the lien for any fee for the well permit shall attach on the first (1st) day of July of the fiscal year for which the permit is required. Each lien shall have the effect of an execution duly levied against all such property on which the lien exists, and shall remain until the fee is paid or the property sold in payment thereof. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.20)

12.12.220 Fees—Liability for payment.

Each of the persons whose duty it is to obtain, or cause to be obtained, any permit from the Director, as provided in this Chapter, shall be, and is declared and made to be, jointly and severally liable for the payment of the fee required to be paid to the Director for the permit. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.21)

12.12.230 Fees—Collection by court action.

In the event of the nonpayment of any fee required by this Chapter to be paid the Director, the Director shall transmit to the City Attorney a notice of the fee being unpaid, and the City Attorney shall proceed to collect the fee from any such person so liable therefor by appropriate action in a court of competent jurisdiction. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.22)

12.12.240 Designation of agent.

Upon filing the application for permit, every operator of any well shall designate an agent upon whom all orders and notices provided in this title may be served in person or by registered or certified mail. Every operator so designating such agent shall within thirty (30) days notify the Director in writing of any change of the agent or the mailing address unless operations within the City are discontinued. Service by registered or certified mail, or in person on the agent so designated, shall constitute service upon the operator for all purposes of this title. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.23)

12.12.250 Notice of sale or transfer.

The operator shall notify the Director and, in the Harbor District, the Board of Harbor Commissioners, in writing of the sale, assignment, transfer, conveyance, or exchange by the operator of wells, property, and equipment appurtenant thereto within thirty (30) days after such sale, assignment, transfer, conveyance or exchange. The notice shall contain the following:

A. The name and address of the person to whom the well and property was sold, assigned, transferred, conveyed, or exchanged;

B. The name and location of the well;

C. The date of sale, assignment, transfer, conveyance or exchange;

D. The date when possession was relinquished by the former operator; and

E. Acknowledgment by new operator of the special conditions imposed by Sections 12.12.060 through 12.12.080. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 2 (part), 1980: prior code § 3300.24)

CHAPTER 12.16 WELL LOCATION*

12.16.010 Compliance required.

Notwithstanding any other provisions of this title, it is unlawful and a nuisance for any person to drill any well, or to erect any derrick or production equipment, at any location within those areas in the City within which such drilling, erection, operation and maintenance are permitted as in this title provided unless such well, derrick and produc-

***Editor's note**—ORD-16-0027 § 1(Exh. A), 2016, amended Ch. 12.16 in its entirety to read as herein set out. Former Ch. 12.16, §§ 12.16.010—12.16.050, pertained to similar subject matter, and derived from: Ord. C-5575 § 3 (part), 1980; and prior code §§ 3300.25—3300.28.1.

State law reference—Provisions on the spacing of wells, Pub. Res. Code § 3600 et seq.

tion equipment are located as provided in this Chapter. The provisions of this Chapter shall not apply to wells for which permits have been issued prior to the effective date of the ordinance codified in this Chapter. Where there is a conflict between this Chapter and any provisions required by State statutes or the D.O.G.G.R., the most restrictive shall govern. (ORD-16-0027 § 1(Exh. A), 2016)

12.16.020 Location.

The location of new wells to existing buildings, structures or sources of ignition and the location of new buildings, structures or sources of ignition to existing wells shall comply with Section 5706.3.1 of the California Fire Code adopted in Chapter 18.48. (ORD-16-0027 § 1(Exh. A), 2016)

12.16.030 Consolidated drill site plans.

To encourage the consolidation of oil production facilities whenever feasible so as to make surface land areas available for productive non-oil surface use, special consideration shall be given to modification of well setback requirements when necessary to make feasible the use of sites for consolidated oil drilling surface facilities. Such modifications shall be reviewed and approved in the same manner as other exemptions, variances and modifications under this title. An application for a drilling permit may include a request for review and approval of an overall plan for the location of facilities, including future well bores, within a consolidated drill site. Upon approval of such plan, facilities and well bores located in accordance therewith shall be deemed to be in compliance with the setback requirements of this title. (ORD-16-0027 § 1(Exh. A), 2016)

CHAPTER 12.20 DERRICKS

12.20.010 Standards.

All derricks and masts erected for drilling, redrilling or remedial operations after the effective date of the ordinance codified in this title shall conform to the California Division of Industrial Safety standards. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.29)

12.20.020 Removal.

All derricks and masts hereafter erected for drilling, redrilling or remedial operations, or for use in production operations, shall be removed within thirty (30) days after completion of the work unless otherwise ordered by the D.O.G.G.R. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.30)

CHAPTER 12.24 BLOWOUT PROTECTION

12.24.010 Drilling and redrilling.

During drilling and redrilling operations, protection against blowout shall be provided in accordance with the most recent edition of the D.O.G.G.R Publication No. MO7 - Blowout Protection in California. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.31)

12.24.020 Other wells.

For all operations other than drilling and redrilling, protection conforming to the requirements of the most recent edition of the D.O.G.G.R Publication No. MO7 - Blowout Protection in California, shall be provided to prevent the blowout of a well. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.32)

CHAPTER 12.26 NATURAL GAS PROCESSING FACILITIES

12.26.010 Locations for establishment or expansion.

The establishment or expansion of natural gas processing facilities shall be limited to oil operating areas, and in no event shall the establishment or expansion of such processing, except gas dehydration, be permitted in oil operating areas 5, 6, 7A, 7B, 8, 9, 12, 13, 16, 18, 19, 21, 22, 23 and 24. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5935 § 5 (part), 1983)

12.26.020 Development standards.

Prior to establishing or expanding any natural gas processing facility, the applicant shall submit fencing and landscaping plans to the satisfaction of the Director. Such plans shall contain as a minimum a solid block fence not less than eight feet (8′) in height separating the use or the expansion from the public right-of-way (plus any transition necessary to reasonably enclose an expansion area). Such plans shall also contain not less than one (1) tree, of not less than fifteen (15) gallon size, for each ten feet (10′) of street frontage of the use or expansion, and three (3) shrubs, of not less than five (5) gallon size, for each tree. Such landscaping is to be located outside the block fence and is to be supported by an automatic irrigation system. Such fencing, landscaping and irrigation shall be in place prior to occupancy of the use or expansion. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5935 § 5 (part), 1983)

CHAPTER 12.28 DEVELOPMENT STANDARDS

12.28.010 Road and drill site surfacing.

Prior to commencement of any drilling operation, all private roads used for access to the drill site and the drill site itself shall be maintained in such manner so as to minimize dust and mud. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.33)

12.28.020 Waste control.

All persons having possession of or in control of any well from which drilling fluid, drill cuttings, petroleum and any other oil field wastes are derived or result from, or is connected with, the drilling, redrilling, or servicing of any well, shall discharge such wastes into a tank adequate to hold such waste. Tank width shall not exceed twelve feet (12′). Such tanks used for waste control shall be removed from the drill site within thirty (30) days after completion of drilling. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.34)

12.28.030 Fencing.

All well production equipment having external moving parts hazardous to life or limb shall be attended twenty-four (24) hours per day, or be enclosed by fencing in conformance with Title 14, Division 2, Chapter 4, Subchapter 2, Article 3, Section 1778 of the California Code of Regulations. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.35)

12.28.040 Well cellars.

All well cellars shall conform to the California Division of Industrial Safety regulations, Title 8 of the California Code of Regulations, Title 14, Division 2, Chapter 4, Subchapter 2, Article 3, Section 1774 of the California Code of Regulations, and the California Fire Code adopted in Chapter 18.48. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.36)

12.28.050 Removal of equipment.

All persons having possession of or in control of any well shall diligently pursue drilling operations until the well is completed or abandoned to the satisfaction of the D.O.G.G.R., and upon completion or abandonment shall remove all drilling equipment from the drill site within thirty (30) days following the completion or abandonment of the well unless otherwise ordered by the D.O.G.G.R. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.37)

CHAPTER 12.32 NOISE

12.32.010 Excessive noise prohibited.

It is unlawful for any person to operate or cause to be operated any oil production or gas processing equipment on any well, or incidental to a well, within the incorporated limits of the City in any manner so as to create any noise which causes the exterior and interior noise level at the receiving property to be in excess of those limits provided in Chapter 8.80. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5935 § 2, 1983: Ord. C-5575 § 3 (part), 1980: prior code § 3300.38)

12.32.020 Areas 5, 6, 7A, 7B, 8, 9, 12, 13, 16, 18, 19, 21, 22, 23 and 24.

A. No person, either as owner, agent, or operator, shall conduct any drilling, or redrilling operation at any well located within oil operating areas 5, 6, 7A, 7B, 8, 9, 12, 13, 16, 18, 19, 21, 22, 23 and/or 24 in any manner so as to create any noise which causes the exterior noise level when measured at the property line of any single- or multiple-family dwelling unit, guest room, commercial building, school, hospital, church, or public library to exceed the noise level standards set forth in Table 1. The exterior noise level generated by the drilling or redrilling operation shall be continuously monitored to ensure conformance to the noise level standards. The costs of such monitoring shall be borne by the operator conducting such operation.

Table 1
EXTERIOR NOISE LEVEL*

Cumulative Number of Minutes in any One-hour Time Period	Noise Level Daytime 7:30 a.m. to 9:30 p.m.	Standards, dBA Nighttime 9:30 p.m. to 7:30 a.m.
30	50	45
15	55	50
5	60	55
1	65	60
0	70	65

* In accordance with Chapter 8.80 - Noise

No person, either as owner, agent, or operator, shall conduct any drilling or redrilling operation at any time at any well located in oil operating areas 5, 6, 7A, 7B, 8, 9, 12, 13, 16, 18, 19, 21, 22, 23 and/or 24 in any manner so as to create any noise which causes the interior noise level in excess of those limits provided in Chapter 8.80.

If the existing ambient noise level, exclusive of existing drilling activity, at the nearest adjacent dwelling unit, guest room, commercial building, school, hospital, church or public library property line to the requested oil drilling site does not exceed the permitted nighttime noise levels in Table 1 for any period, then the following regulations shall apply:

1. The only activity permitted between the hours of seven p.m. (7:00 p.m.) and seven a.m. (7:00 a.m.) will be "on bottom" drilling, with single joint connections. During the same time frame, none of the following will be allowed:

a. Hammering on pipe;

b. Racking of pipe;

c. Acceleration and deceleration of engines or motors;

d. Use of drilling assembly rotational speeds that cause more noise than necessary and could reasonably be reduced by use of a slower rotational speed;

e. Picking up or laying down drill pipe, casing, tubing or rods into or out of the drill hole.

2. If the measured ambient level exceeds that permissible within any of the first four (4) noise limit categories in Table 1 above, the allowable noise exposure standard shall be increased in five (5) decibel increments in each affected category as appropriate to encompass or reflect the ambient noise level. In the event the ambient noise level exceeds the fifth (5th) noise limit category, the maximum allowable noise level under said category shall be increased to equal the maximum ambient noise level.

3. If the difference between the noise levels with noise source operating and not operating is four (4) decibels or greater, then the noise measurement of the alleged source can be considered valid with a correction applied to account for the contribution of the ambient noise. The correction is to be applied in accordance with data shown in Table 2.

Table 2
BACKGROUND NOISE CORRECTION

Difference Between Total Noise and Background Noise Alone (Decibels)	Amount to be Subtracted from Total Noise Measurement (Decibels)
4.0 - 4.5	2.0
4.5 - 6.0	1.5
6.0 - 8.0	1.0
8.0 - 10.0	.5

The sound level meter used in conducting noise evaluations shall meet A.N.S.I. Standard S1.4-1983 (R2006) Specifications for Sound Level Me-

ters, Type 1 or Type 2, or an instrument and the associated recording and analyzing equipment that will provide equivalent data. The acoustic terminology used in these sections shall be defined as in Section 8.80.020, and noise measurements procedure shall be conducted in compliance with methods specified in Section 8.80.140.

B. In the event that the owner, agent or operator conducting any operation which produces a noise level believed to be in excess of the noise levels provided in this Section refuses or otherwise declines to shut down the drilling operation so that the ambient noise level can be measured, then the ambient noise level shall be estimated by performing a measurement in the same general area of the offending source but at a sufficient distance such that the offending noise from the source is inaudible.

C. If measurements conducted under Subsections A or B of this Section indicate a noise level in excess of that provided in Subsection A, such drilling operation shall be deemed to be in violation of this Section.

D. Violation of any provision of this Section shall be cause for a notice of violation to be issued by the Director. Thereafter, if the violation of any such condition or conditions of this Section is not brought into compliance with this title, the Director shall restrict the hours of operations as indicated in Subsection 12.12.060.G. The procedure for violation provided in this Section shall not be exclusive but shall be in addition to any other procedure for violation which the Director can employ under the provisions of this title. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.39)

12.32.030 Acoustical blankets.

A. No person, either as owner, agent or operator, shall conduct any drilling or redrilling operations on any well located within the oil operating areas 5, 6, 7A, 7B, 8, 9, 12, 13, 16, 18, 19, 21, 22, 23 and 24 unless all derricks and all drilling machines which produce noise and which are used in connection with said drilling or redrilling operations are enclosed with soundproofing material as provided in Subsection B of this Section.

B. When soundproofing is required by the provisions of Subsection A of this Section, such soundproofing shall comply with accepted A.P.I. standards and shall be subject to Fire Department regulations. All doors and similar openings shall be kept closed during drilling operations, except for ingress and egress and necessary logging and well completion operations. Alternate materials or methods of soundproofing may be used, provided that such alternative has been approved by the Director and the Fire Chief. The Director and the Fire Chief may approve any such alternative if they find that the proposed material and method is equal to soundproofing ability and fire-resistive qualities to the aforesaid specifications. Either may require the submission of evidence to substantiate any claims that may be made regarding the use of such alternative. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.40)

12.32.040 Monitoring operations authorized.

For the purpose of noise abatement, the Director shall have the authority to monitor the operation of oil field equipment used for drilling, redrilling, well servicing, remedial or maintenance work. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.40)

CHAPTER 12.36 ABANDONED AND IDLE WELLS

12.36.010 Abandonment procedure.

Upon the final and permanent cessation of all operations on any well, or upon the revocation, neglect, or failure to obtain or to maintain in full force and effect under the provisions of this title, the permit required to be obtained under this title from the Director, the permittee:

A. Shall abandon the well in accordance with the rules and regulations of the D.O.G.G.R.; and

B. In accordance with the regulation of the D.O.G.G.R. shall remove from the premises all equipment used in connection with the well that is not necessary for the operation or maintenance of other wells of permittee in the vicinity;

C. Shall cause all sumps, cellars, and ditches which are not necessary for the operation or maintenance of other wells of permittee in the vicinity to be cleaned out and all oil, oil residue, drilling fluid, and rubbish removed therefrom and the sumps, cellars, and ditches leveled or filled, all in accordance with the D.O.G.G.R. Where such sumps, cellars, and ditches are lined with concrete, permittee shall cause the walls and bottoms to be broken up and removed;

D. Shall cause the premises to be cleaned and graded and left entirely free of oil, rotary mud, oil-soaked earth, asphalt, tar, concrete, litter, debris, and other substances, and left in a clean and neat condition, all to the satisfaction of the D.O.G.G.R.;

E. Shall cause all streets, sidewalks, and other places constituting public property which may have been disturbed or damaged in connection with any operation, including operations for the abandonment of the well, to be cleaned, and, except for ordinary wear and tear of public streets and highways, restored to substantially the same condition thereof as the same existed at the time of issuance of the permit, or at the time operations were first commenced in connection with the drilling, operation or maintenance of the well, whichever may be earlier;

F. Shall conduct work related to such abandonment during the hours as specified in Subsection 12.12.060.G; and

G. Notwithstanding the provisions of this Section, permittees who are also the owners of the fee simple interest in the land on which the abandoned well is located may, pursuant to procedures set forth in Sections 12.36.050 and/or 12.48.030, be granted an exemption from the provisions of this Section. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.42)

12.36.020 Idle well—Determination.

A well shall be deemed to be an idle well if it has not been utilized for any purpose for a twenty-four (24) month period immediately preceding the date of service of notice as provided in Section 12.36.030; except any well located in a subsidence area as defined under the provisions of the California Public Resources Code or any well that permittee is retaining for use under a secondary or tertiary recovery plan which has been approved by the D.O.G.G.R. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.43)

12.36.030 Idle well—Notice.

Whenever a well is an idle well, as defined in Section 12.36.020, the Director may send notice thereof by registered mail to:

A. The surface owner, mineral owner, and lessee of land on which the well is located as shown on the last equalized assessment roll of the City; and

B. The permittee of the well.

Within ninety (90) days after the Director has sent notice of an idle well, the Director shall request the D.O.G.G.R. to commence abandonment proceedings. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.44)

12.36.040 Suspension of provisions.

The provisions of Section 12.36.010 and/or Section 12.36.020 shall be suspended from the date that an application for exemption is filed with the Director as provided in Section 12.36.050 until a decision on the application is rendered. If no action is taken by the Director within fifteen (15) days from the date of filing the application for exemption, it should be deemed to have been denied on the sixteenth (16th) day after such filing. If the application for exemption is denied, and an appeal is filed with the Planning Commission as provided in Section 12.48.030, the provisions of Section 12.36.010 and/or Section 12.36.020 shall remain suspended until the appeal is granted or denied. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.45)

12.36.050 Application for exemption.

Within thirty (30) days after notice of an idle well is sent as provided in Section 12.36.030, the owner or owners of the fee simple interest thereof may apply to the Director for an exemption from the provisions of Sections 12.36.010 and/or

12.36.020. Each application shall be in writing, filed in such form and manner as prescribed by the Director, and pay a fee as set forth by City Council resolution. The application shall contain a description of the subject property and a detailed explanation of the request for the exemption. The application shall be accompanied by maps of the subject property as deemed necessary by the Director, the maps to be prepared and verified by a licensed land surveyor or a registered civil engineer, and shall show in detail each structure or improvement that is the subject of the requested exemption and shall depict the size, depth, and lateral location of each structure or improvement with reference to the boundary lines of the property and to any appropriate reference points. Inspections of the subject property shall be conducted under the direction of the Director, including such inspections and reports by other departments of the City as the Director deems necessary. Upon the completion of the inspections and reports, the Director shall determine whether the circumstances justify the granting of an exemption, and, if so, grant to the applicants, subject to any conditions, limitations, and restrictions which the Director shall impose, an exemption to the requirements of Sections 12.36.010 and/or 12.36.020, provided that:

A. The applicant has shown good cause why there has been no production during the aforesaid preceding period of twenty-four (24) months or otherwise why there has been a cessation of production;

B. There are practical difficulties or unnecessary hardships resulting from the strict enforcement of this Chapter;

C. It will not be detrimental to the public welfare or to the owners of the adjacent property; and

D. It will not interfere with the orderly development of the City as provided under Title 21.

Each exemption shall be in force and effect until those structures or improvements which have been permitted to remain by reason of the exemption affect a project on the subject property for which a building permit is required. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.46)

12.36.060 Conclusively idle wells.

Notwithstanding any other provision of this Chapter to the contrary, in the case of a well for which a notice of intention to abandon has been given to the D.O.G.G.R. pursuant to Section 3229 of the California Public Resources Code, or any amendment thereto, such wells shall conclusively be deemed to be idle wells. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.47)

12.36.070 Right of entry for inspection.

Any officer or employee of the City whose specific duties require the inspection of the premises shall have the right and privilege at any time upon notice to enter upon any premises upon or from which any operations being conducted for which any permit has been issued or is required under this title, for the purpose of making any of the inspections in this title, or in any other ordinance of the City, provided to be made, or for any other lawful purpose. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.48)

CHAPTER 12.40 STORAGE

12.40.010 Zoning regulations applicable.

Title 21 Zoning Regulations shall be applicable to the construction, operation, and maintenance of any structure or facility to be used for the storing or handling of oil or any flammable liquid, except when such structure or facility is used in connection with the drilling, redrilling, servicing a well or production of oil therefrom. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.49)

12.40.020 Maximum tank capacity for each producing oil well.

If oil or other liquid storage facilities are established incidental to a producing well on a drill

site, the total capacity of such storage facilities shall not exceed two thousand (2,000) barrels or approximately sixty-three thousand (63,000) gallons per well. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.50)

12.40.030 Design, construction, installation and maintenance of storage tanks.

Petroleum storage tanks shall be designed, constructed, installed and maintained in accordance with applicable provisions of Title 8 of the California Code of Regulations, Title 14, Division 2, Chapter 4, Subchapter 2, Article 3, Section 1773 of the California Code of Regulations, the California Fire Code adopted in Chapter 18.48, and Fire Department regulations. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.51)

12.40.040 Loading by truck from production tank sites.

Loading by truck from production tank sites shall be in accordance with Fire Department regulations. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.52)

CHAPTER 12.44 FIRE PREVENTION

12.44.010 Electrical equipment.

All electrical equipment used, installed or maintained within fifty feet (50′) of a drilling well and within twenty-five feet (25′) of a producing well shall be in accordance with the provisions of California Electrical Code adopted in Chapter 18.42 governing Class 1, Division 2, Hazardous Locations. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.53)

12.44.020 Internal combustion engines, storage tanks, fired equipment and open flames.

No internal combustion engine (except those used for the drilling, redrilling, or servicing of a well), storage tank, boiler, fired equipment or open flame (except welding supervised by the production foreman, drilling foreman, drilling supervisor, or safety supervisor in compliance with a hot work permit issued by the Fire Department, the California Fire Code adopted in Chapter 18.48, the regulation of the California Division of Occupational Safety and Health, and N.F.P.A. 51B Standard for Fire Prevention During Welding, Cutting, and Other Hot Work) shall be located closer than twenty-five feet (25′) to a producing well nor closer than one hundred feet (100′) to a drilling well. During drilling operations on a drill site of two (2) acres or less in an area where two (2) or more wells are drilled and drilling and production equipment are located on such sites, the provisions of this title relating to distances of storage tanks may be altered at the discretion of the Fire Chief after consideration of the private fire prevention measures to be provided. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.54)

12.44.030 Flammable waste gases or vapors.

Flammable waste gases or vapors shall not be discharged to the atmosphere except by written approval of the D.O.G.G.R. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.55)

12.44.040 Fire control equipment.

A minimum of two (2) fire extinguishers shall be maintained at all well locations where drilling, redrilling, workover, or well servicing is being conducted. Each such extinguisher shall have a minimum classification of 20 B as set forth in N.F.P.A. 10 Standard for Portable Fire Extinguishers. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.56)

CHAPTER 12.48 ENFORCEMENT AND REVIEW PROCEDURE

12.48.010 Enforcement duty—Stop orders.

A. Enforcement. It shall be the duty of the Director to enforce the provisions of this title.

B. Stop Orders. If at any time the Director finds that any operator is violating any of the provisions of this title, he or she may order imme-

diate cessation of operations. The operator shall immediately comply with the order of the Director to cease and shall not resume such operations until written consent therefor by the Director has been obtained. Upon written request by the operator, the City Manager may stay compliance with the order of the Director until such operator has appealed under the provisions of Sections 12.48.020 and 12.48.030. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.57)

12.48.020 Appeal—City Council to hear.

The City Council shall have the power to hear and determine appeals from any order, requirement, decision or determination made by the Director in the administration or enforcement of any of the provisions of this title. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.58)

12.48.030 Appeal—Filing.

Any appeal from any order, requirement, decision or determination of the Director shall be in writing and shall be filed with the City Clerk within thirty (30) days following the date of such order, requirement, decision or determination of the Director from which the appeal is taken. The appeal filed shall set forth the order, requirement, decision or determination of the Director which is being appealed, and the grounds upon which the appellant deems himself or herself aggrieved thereby. At the time of filing the appeal, the appellant shall pay to the City Clerk a filing fee as set forth by City Council resolution, which filing fee shall be refunded in the event the appeal is sustained by the City Council. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.59)

12.48.040 Appeal—Records and reports.

Within five (5) business days following the filing of the appeal, the City Clerk shall advise the Director of the filing of appeal by the appellant, and the Director shall within five (5) business days thereafter following transmit to the City Clerk all papers relating to the order, requirement, decision or determination appealed from. In addition the Director shall prepare, or cause to be prepared, and transmit to the City Clerk any supplemental report as he or she may deem necessary and relevant to the appeal. In the event such supplemental report is prepared and transmitted to the City Clerk, a copy thereof shall be served upon the appellant at least five (5) days prior to the date of hearing on the appeal. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.60)

12.48.050 Appeal—Hearing notice.

Upon receipt of the record on appeal, the City Council shall set the matter for hearing within thirty (30) days and give notice by mail of the time, place, and purpose thereof to appellant and to the Director and any other interested party who has requested in writing to be so notified; and no other notice need be given. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.61)

12.48.060 Appeal—Decision.

Upon the date set for the hearing the City Council shall hear the appeal unless for good cause the City Council on that date continues the matter. No notice of continuance need be given if the order therefor is announced at the time for which the hearing was set. The hearing shall be conducted in accordance with the provisions of Chapter 2.93. Upon hearing such appeal, the City Council may sustain or modify the order, requirement, decision or determination appealed from, or in lieu thereof may make such other or additional order as it shall deem proper in the premises, subject to the same limitations as are placed upon the Director by this title and any other provisions of law. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.62)

CHAPTER 12.52 PERMIT REVOCATION PROCEDURE

12.52.010 Grounds.

Any permit issued by the Director pursuant to the provisions of this title may be revoked by the City Council upon finding, after hearing as specified in this Chapter, either:

A. That permittee has failed, neglected or refused to perform, comply with and abide by any of the conditions of this permit;

B. That permittee has failed or neglected or refused to comply with or abide by, or has in any way violated, any of the provisions of this title, or of any other ordinance of the City, or the Charter of the City or any other law, rule or regulation, either directly or indirectly, by reason of or in connection with or incidental to his or her operations under the permit, or upon the premises covered by the permit;

C. If any of permittee's operations, or the continuance thereof, upon the premises covered by his or her permit are, or are likely to become, a menace or hazard to private or public property, or to any interest of the City, or to the lives or safety of persons; or

D. If permittee shall have made any willful misrepresentation of fact in any application for any such permit, or in any report or record required by this title to be filed or furnished by permittee. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.63)

12.52.020 Initiation.

Proceedings before the City Council for the revocation of any permit shall be instituted by the Director by causing to be posted in a conspicuous place on the premises covered by the permit, readable from the ground level, a notice entitled "Notice of Intention to Revoke Permit," and by causing a copy thereof to be mailed by certified mail to permittee or his or her designated agent, and a copy to be filed with the City Council. Failure of permittee or his or her designated agent to receive the copy sent by mail shall not invalidate any revocation proceeding taken under this Chapter. The notice shall set forth the date of the posting thereof, and shall also set forth the reasons and grounds upon which the revocation by the City Council will be based unless cause is shown why such revocation is not proper, and shall require permittee, within two (2) days after the date of posting, as so specified in the notice, to initiate necessary action to cure and remedy any default under, noncompliance with, or violation of any condition of the permit, or other condition for which suspension or revocation of the permit be made, or to show cause before the City Council, as provided in this title, why the permit should not be revoked. The notice shall further state that upon the revocation of the permit as provided in this Chapter, any well, derrick, production equipment, or other structure, appliance, apparatus, machinery, equipment or facility for the use and maintenance of which the permit is required will be subject to being abated as a nuisance as provided by law, and the costs and expenses of the abatement provided will be made a charge and enforced against any and all persons whose duty it is under the provisions of Sections 12.12.010 and 12.12.020 to obtain such permit and to keep the same in force and effect, and also against and as a lien upon the property so abated as a nuisance, and also against and as a lien upon the real property upon which the nuisance exists and from which the nuisance is or will be abated. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.64)

12.52.030 Immediate suspension.

A. If the City Council is of the opinion, based upon a prima facie showing, that the operations of a permittee constitute an immediate menace or hazard to public property, or to any interest of the City, or to the lives or safety of persons, or may become such menace or hazard pending a final decision on any proceeding under this Chapter for revocation of his or her permit, the City Council may immediately suspend the permit, either in connection with a proceeding for the revocation thereof, or otherwise.

B. If the suspension is ordered prior to the time the notice of intention to revoke permit is served upon permittee as provided in this section, the notice shall also include notice of the action of the City Council in suspending the permit and shall give the reasons and grounds therefor. If the suspension is ordered at any other time, notice thereof and of the reasons and grounds therefor shall immediately be mailed to permittee or his or her designated agent and a copy of the notice posted on the premises covered by the permit. From and after the giving of notice of the suspension as provided in this section, and pending a remedying or removal of the causes stated in the notice as the reasons or grounds for the suspension, or pending a final determination upon the proceedings for revocation of the permit (if such proceedings are being had), no person shall carry on any of the operations authorized to be performed under the terms of the permit. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.65)

12.52.040 Time extension to remedy grounds of suspension.

Upon written application therefor by permittee, the City Council may, in its discretion, extend the time for the curing and remedying of any such default, noncompliance or violation by permittee, but no such extension or extensions of time shall be for a longer period than a total of thirty (30) days from and after the service upon permittee of the notice of intention to revoke or notice suspending the permit. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.66)

12.52.050 Hearing—Demand.

Unless a written demand for a hearing before the City Council, either as to the right of the City Council to revoke and/or suspend the permit or as to the curing of any such default is filed by permittee with the City Council within the time provided for the curing of such default, the permit shall, without any further or other action on the part of the City Council, be and become terminated and revoked. Failure to so file a demand for the hearing shall be deemed to be an admission on the part of permittee and all others claiming any rights under or in relation to the permit or the premises covered by the permit, that valid grounds exist for the suspension and revocation of the permit, and that the same may thereupon properly be and become terminated and revoked. If a hearing before the City Council is so demanded the permit shall not be or become terminated or revoked unless and until so ordered by the City Council after the completion of the hearing, as provided in this Chapter. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.67)

12.52.060 Hearing—Setting time and date.

Upon the filing with the City Council of the demand for hearing, the City Council shall fix a time and place therefor. Such time shall be fixed for a day not later than thirty (30) days after the time of filing the demand for the hearing. A five (5) day notice in writing, of the time and place of the hearing shall be served upon the permittee or his or her designated agent. The hearing shall be a condition precedent to any action at law or in equity, by or in behalf of permittee, based upon the action of the City Council in suspending and/or revoking the permit. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.68)

12.52.070 Hearing—Evidence.

At the hearing the permittee shall be given an opportunity to present whatever competent, relevant and material evidence he or she may desire to submit, either through witnesses or by the production of books, records or other documentary evidence, including evidence upon any questions relating to the revocation or suspension of such permit or to the curing of any default for which the permit was ordered revoked or suspended. The City Council shall not be bound by technical rules of evidence, nor shall any informality in any of the proceedings upon the hearing, or in the matter of taking testimony, invalidate or affect any order or decision of the City Council, and the hearing shall be conducted in accordance with the provisions of

Chapter 2.93. The City Council shall have the right to adjourn the hearing from time to time. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.69)

12.52.080 Hearing—Decision.

The decision of the City Council in regard to the revocation of the permit may be rendered orally or in writing at the conclusion of the hearing or at any time thereafter, and the decision shall be final. In the event the decision is rendered at the hearing no further notice thereof need be given to the permittee, or any other person, except that the City Clerk shall give written notice to the Fire Chief of the decision. If the decision is not rendered at the hearing, written notice of the decision shall be mailed to the permittee, or his or her designated agent, and a copy of the notice posted on the premises covered by the permit, and a copy of the notice shall be transmitted to the Fire Chief. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.70)

12.52.090 Work to cease—Exemptions.

No person shall carry on any of the operations authorized to be performed under the terms of any permit during any period of suspension thereof, or after the revocation thereof, or pending a judgment of court upon any application for writ taken to review the decision or order of the Council in suspending or revoking the permit; provided, however, that nothing contained in this Chapter shall be construed to prevent the performance of such operations as may be necessary in connection with a diligent and bona fide effort to cure and remedy the default, noncompliance or violation for which a suspension of the permit was ordered by the City Council, or such operations as may be necessary to prevent damage to the underground resource as provided in Section 3106 of the California Public Resources Code, or for the safety of persons and the protection and preservation of property. In this context, preservation of property shall not mean continuation of extraction of the oil or gas or other hydrocarbons underlying the premises at which the permit applies. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.71)

CHAPTER 12.56 HAZARDOUS LIQUID PIPELINES*

12.56.010 Rules and regulations adopted.

A. The City Council hereby adopts and incorporates by reference, as though set forth in full herein, Sections 51010.5, 51011, 51012.3, 51013, 51013.5, 51014, 51014.3, 51014.5, 51014.6, 51015, 51016, 51018, 51018.8 and 51019 of Title 5, Division 1, Part 1, Chapter 5.5 of the California Government Code (known as the Elder California Pipeline Safety Act of 1981), as said sections may be amended from time to time, subject to the changes, amendments and modifications thereto as set forth in this Chapter. Three (3) copies of the Pipeline Safety Act and the amendments and modifications thereto, as adopted by this Chapter and printed as a code in book form shall be on file in the Office of the City Clerk.

B. It is the objective of the City of Long Beach, in enacting this Chapter, to provide for the public safety within the City from hazards which may arise by reason of the operation of the pipelines within the City carrying hazardous liquids. These regulations are incorporated into this Chapter to insure safe operation of those pipeline facilities handling hazardous material, and Title 5, Division 1, Part 1, Chapter 5.5 of the California Government Code (Elder California Pipeline Safety Act of 1981) is adopted to the extent necessary to achieve safe operation of those facilities.

C. This Chapter applies to all hazardous liquid pipelines located within the City of Long Beach which operate at twenty percent (20%) or less of the pipeline's design yield strength; except those pipelines located entirely within a single plant facility pipeline within private easement and any oil field flow line or gathering line.

D. The Director or Fire Chief may exempt the application of this Chapter to any such pipe-

*Note—Prior ordinance history: Prior code §§ 7561, 7561.1, 7561.2 and 7561.3 and Ord. C-5681.

line or portion thereof, when it is determined from both an engineering and a fire-life safety point of view that the risk to the public safety is slight and the probability of injury or damage is remote. Such exemptions shall be re-evaluated annually. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-6397 § 1 (part), 1987)

12.56.020 Amendments.

The Elder California Pipeline Safety Act of 1981, Title 5, Division 1, Part 1, Chapter 5.5 of the California Government Code, is amended and modified as set forth in this Chapter. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-6397 § 1 (part), 1987)

12.56.030 Section 51014 amended.

Section 51014 of the Elder California Pipeline Safety Act of 1981 is amended to read as follows:

§51014. Pressure tests; manner of conducting

(a) The pressure tests required by subdivisions (b), (c), and (d) of Section 51013.5 shall be conducted in accordance with Subpart E (commencing with Section 195.300) of Part 195 of Title 49 of the Code of Federal Regulations, except that an additional four (4) hour leak test, as specified in subsection (c) of Section 195.302 of Part 195 of Title 49 of the Code of Federal Regulations, shall not be required under subdivisions (b), (c), or (d) of Section 51013.5. Pressure tests performed under subdivisions (b), (c), and (d) of Section 51013.5 shall not show an hourly change for each section of the pipeline under test at the time in excess of either ten (10) gallons or the sum of one (1) gallon and an amount computed at a rate in gallons per mile equivalent to one-tenth (1/10) of the nominal internal diameter of the pipe in inches. The specified test medium shall be water with a fugitive dye additive, or another test medium if approved by the Director.

(b) Test pressure shall be at least one hundred twenty-five percent (125%) of the actual pipeline operating pressure.
(ORD-16-0027 § 1(Exh. A), 2016; Ord. C-6397 § 1 (part), 1987)

12.56.040 Section 51015(a) amended.

Section 51015(a) of the Elder California Pipeline Safety Act of 1981 is amended to read as follows:

§51015. Maps and diagrams; fire plans and procedures; availability of records, maps, etc.; inspections

(a) Every pipeline operator shall provide the City Engineer, the Department of Gas and Oil, and the Long Beach Fire Department a map or suitable diagram showing the location of the pipeline.
(ORD-16-0027 § 1(Exh. A), 2016; Ord. C-6397 § 1 (part), 1987)

12.56.050 Section 51010.5 amended.

Section 51010.5 of the Elder California Pipeline Safety Act of 1981 is amended by deleting therefrom subparagraph (a)(4). (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-6397 § 1 (part), 1987)

12.56.060 Fire Chief designated.

For purposes of applying the Elder California Pipeline Safety Act of 1981, the words ″State Fire Marshal″ shall mean ″Fire Chief or his or her designated representative.″ (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-6397 § 1 (part), 1987)

12.56.070 Enforcement; civil penalties for violation.

A. Violations. Any pipeline operator who is determined by the Director to have violated any provision of this Chapter shall be liable to the City for a civil penalty of not more than one thousand dollars ($1,000.00) for each violation for each day that violation persists, except that the maximum penalty shall not exceed two hundred thousand dollars ($200,000.00) for any related series of violations.

B. Assessment of Penalty. The amount of the penalty shall be assessed by the Director by written notice. In determining the amount of the penalty, the Director shall consider the nature, circumstances, and gravity of the violation and, with respect to the pipeline operator found to have committed the violation, the degree of culpability,

any history of prior violations, the effect on ability to continue to do business, any good faith in attempting to achieve compliance, ability to pay the penalty, and such other matters as justice may require.

C. Additional Penalty—Cessation of Pipeline Operations. In addition to the penalties provided in Subsections A and B of this Section, the Director shall have the additional power with respect to any such violations to order a pipeline operator to cease operations within the City. A determination by the Director that a pipeline operator shall cease pipeline operations within the City shall be final unless an appeal therefrom is taken, and a pipeline operator served with written notice of a final order to cease pipeline operations shall have ninety (90) days after service of the notice in which to abandon, or remove, facilities in accordance with the provisions of this Chapter and any other applicable ordinance of the City.

D. Appeal. Any aggrieved pipeline operator may appeal a decision or action of the Director taken pursuant to this Section to the Planning Commission.

E. Time and Place to File Appeal. An appeal must be filed within ten (10) calendar days after a decision or action by the Director, and the appeal shall be filed with the Planning Commission on a form provided by the City. The Planning Commission shall notify the Director when an appeal is filed.

F. Public Hearing. The Planning Commission shall set the matter on the Planning Commission agenda and the Planning Commission shall set the matter for hearing. The hearing shall be held within sixty (60) days of the filing of the appeal, but for good cause the hearing may be continued from time to time by the Planning Commission.

G. Notice of Hearing. Not less than ten (10) calendar days before the hearing the Planning Commission shall give written notice of hearing to the appellant, applicant or other real party in interest and to any other person who has made a request for a notice. The Planning Commission shall also give notice to the Director.

H. Conduct of Hearing and Procedure. The hearing shall be conducted pursuant to the rules of the Planning Commission, Chapter 2.18 and rules relating to conduct of a hearing, Chapter 2.93.

I. Written Report. Not less than five (5) days before the hearing, the Director shall file a written report with the Planning Commission outlining the facts of the case and the Director's action and decision from which the appeal was taken. The report shall be distributed to the Planning Commission members prior to the hearing and copies shall be made available to parties involved in the appeal on the hearing date.

J. Hearing on Appeal. After a hearing, the Planning Commission may affirm, modify or overrule the decision or action of the Director but any such action by the Planning Commission shall require a two-thirds (2/3) majority vote. If the Planning Commission fails to obtain the requisite votes to affirm, modify or overrule, the decision or action of the Director shall stand.

K. Fees. By resolution, the City Council may set fees for the filing of an appeal. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-6397 § 1 (part), 1987)

CHAPTER 12.60 EXEMPTION OF COUNTY FLOOD CONTROL DISTRICT

12.60.010 Exemption from provisions.

Notwithstanding any other provision of this title, no provision of this title shall apply to or be enforced against the County flood control district, or any agent of the district, if the application or enforcement of such provisions to or against the County flood control district or its agents would constitute a violation of any provision of that certain judgment of permanent injunction made and entered by the Superior Court of the State in and for the County of Los Angeles in an action entitled *"Continental Corporation et al., vs. City of Long Beach et al.,"* and numbered 442081 in the records and files of the Court, and to the extent that any provision of this title is by its terms applicable to or enforceable against the County

flood control district, or its agents, in violation of the permanent injunction, the provision, to that extent, shall be construed as if the County flood control district and its agents were specifically exempted from the application of the provisions. (ORD-16-0027 § 1(Exh. A), 2016; Ord. C-5575 § 3 (part), 1980: prior code § 3300.72)

CHAPTER 12.64 RESTRICTED AREA INITIATIVE ORDINANCE AND AMENDMENTS

12.64.010 Restricted area initiative ordinance.

An ordinance making it unlawful to erect, construct or install any derrick, machinery or apparatus for the purpose of drilling for, pumping or producing oil, gas or other hydrocarbon substances from any well not existing at the time this ordinance takes effect, or to maintain, pump or operate such new well, within certain portions of the City of Long Beach, repealing Ordinances Numbers C-282 and C-528, and providing penalties for the violation of this ordinance.

The people of the City of Long Beach do ordain as follows:

Section 1—It is hereby declared to be unlawful for any person, firm, association or corporation, whether as principal, agent, servant, employee or otherwise, to erect, construct or install, or cause to be erected, constructed or installed any derrick, machinery or other apparatus or equipment for the purpose of drilling for oil, gas or other hydrocarbon substances, or pumping or producing the same from any well not actually being drilled or existing at the time this ordinance takes effect, within that portion of the City of Long Beach described as follows:

Beginning at the intersection of the line of ordinary high tide of the Pacific Ocean with the westerly boundary line of the City of Long Beach; thence northerly along said westerly boundary line of the City of Long Beach and following its various courses to its intersection with a former northwesterly boundary line of the City of Long Beach as said boundary line existed prior to the annexation election of December 28th, 1923; thence northeasterly along said former northwesterly boundary line of the City of Long Beach to the southerly line of Willow Street; thence easterly along said southerly line of Willow Street to a line three hundred feet (300′) west of and parallel to the westerly line of California Avenue, said line three hundred feet (300′) west of and parallel to the westerly line of California Avenue being also a boundary line of the City of Long Beach; thence south along said line three hundred feet (300′) west of and parallel to the westerly line of California Avenue to the northeasterly line of the private right-of-way of the Pacific Electric Railway Company; thence southeasterly along the northeasterly line of said private right-of-way and across all intersecting streets and alleys to its intersection with the easterly boundary line of the City of Long Beach at the Orange County line; thence southerly along said boundary line of the City of Long Beach to the line or ordinary high tide of the Pacific Ocean; and thence westerly along said line of ordinary high tide of the Pacific Ocean to the point of beginning, or to erect, construct or install, or cause to be erected, constructed or installed, any derrick, machinery or other apparatus or equipment for the purpose of drilling for oil, gas or other hydrocarbon substances, or pumping or producing the same from any well not actually being drilled or existing at the time this ordinance takes effect, within five hundred feet (500′) of any real property used for public school purposes or any building used for hospital purposes at any place within the City of Long Beach.

Section 2—Every person, firm, association or corporation, whether as principal, agent, servant, employee or otherwise, violating any of the provisions of this ordinance shall be deemed

guilty of a misdemeanor, and upon conviction thereof shall be punished by a fine not exceeding five hundred dollars ($500.00) or by imprisonment for not more than six (6) months, or by both such fine and imprisonment; and each such person, firm, association or corporation shall be deemed guilty of a separate offense for each day during any portion of which the violation of any of the provisions of this ordinance is committed, continued or permitted.

Section 3—Ordinances Numbers C-282 and C-528 are hereby repealed.

Note—The above Initiative Ordinance was passed by the electors of the City at a Special Municipal Election held on the ninth day of March, 1927, in accordance with Ordinance No. C-615 calling said election.

(ORD-16-0027 § 1(Exh. A), 2016; Prior code § 3300.3)

12.64.020 Initiative ordinance amended—June 15, 1937.

An ordinance to amend an ordinance entitled, an ordinance making it unlawful to erect, construct or install, any derrick, machinery, or apparatus for the purpose of drilling for pumping or producing oil, gas or other hydrocarbon substances from any well not existing at the time this ordinance takes effect, or to maintain pump or operate such new well, within certain portions of the City of Long Beach, repealing Ordinances Numbers C-282 and C-528, and providing penalties for the violation of this ordinance, so as to permit the drilling of not more than one such well to an acre in a certain portion of the property described in said ordinance.

The People of the City of Long Beach do ordain as follows:

Section 1—It is hereby declared to be unlawful for any person, firm, association or corporation, whether as principal, agent, servant, employee or otherwise, to erect, construct or install, or cause to be erected, constructed or installed any derrick, machinery or other apparatus or equipment for the purpose of drilling for oil, gas or other hydrocarbon substances, or pumping or producing the same from any well not actually being drilled or existing at the time this ordinance takes effect, within that portion of the City of Long Beach described as follows:

Beginning at the intersection of the line of ordinary high tide of the Pacific Ocean with the westerly boundary line of the City of Long Beach and following its various courses to its intersection with a formerly northwesterly boundary line of the City of Long Beach as said boundary line existed prior to the annexation election of December 28th, 1923; thence northeasterly along said former northwesterly boundary line of the City of Long Beach to the southerly line of Willow Street thence easterly along said former northwesterly boundary line of the City of Long Beach to the southerly line of Willow Street; thence easterly along said southerly line of Willow Street to a line three hundred feet (300′) west of and parallel to the westerly line of California Avenue, said line three hundred feet (300′) west of and parallel to the westerly line of California Avenue being also a boundary line of the City of Long Beach; thence south along said line three hundred feet (300′) west of and parallel to the westerly line of California Avenue to the northeasterly line of the private right-of-way of the Pacific Electric Railway Company; thence southeasterly along the northeasterly line of said private right-of-way and across all intersecting streets and alleys to its intersection with the easterly boundary line of the City of Long Beach at the Orange County line; thence southerly along said boundary line of the City of Long Beach to the line of ordinary high tide of the Pacific Ocean and thence westerly along said line of ordinary high tide of the Pacific Ocean to the point of beginning, except not more than one (1) well

on any acre in that portion of the said defined area lying west of the west line of the Los Angeles County Flood Control District right-of-way; or to erect, construct or install, or cause to be erected, constructed or installed, any derrick, machinery or other apparatus or equipment for the purpose of drilling for oil, gas or other hydrocarbon substances, or pumping or producing the same from any well not actually being drilled or existing at the time this ordinance takes effect, within five hundred feet (500′) of any real property used for public school purposes or any building used for hospital purposes at any place within the City of Long Beach.

Section 2—Every person, firm, association or corporation, whether as principal agent, servant, employee or otherwise, violating any of the provisions of this ordinance shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be punished by fine not exceeding five hundred dollars ($500.00) or by imprisonment for not more than six (6) months, or by both such fine and imprisonment; and each such person, firm, association or corporation shall be deemed guilty of a separate offense for each day during any portion of which the violation of any of the provisions of this ordinance is committed, continued or permitted.

Section 3—Ordinance Numbers C-282 and C-528 are hereby repealed.

Note—The above Initiative Ordinance was passed by the electors at a Special Municipal Election held on the 15th day of June, 1937, in accordance with Ordinance No. C-1505 calling said election.

(ORD-16-0027 § 1(Exh. A), 2016; Prior code § 3300.4)

12.64.030 Initiative ordinance amendment—February 9, 1956.

An ordinance amending that certain ordinance adopted by the people of the City of Long Beach at a Special Municipal Election held on the 9th day of March, 1927, entitled "An ordinance making it unlawful to erect, construct or install any derrick, machinery or apparatus for the purpose of drilling for, pumping or producing oil, gas or other hydrocarbon substances from any well not existing at the time this ordinance takes effect, or to maintain, pump or operate such new well, within certain portions of the City of Long Beach, repealing Ordinances Numbers C-282 and C-528 and providing penalties for the violations of this ordinance", as revised or amended by the people of the City of Long Beach at a Special Municipal Election held on the 15th day of June, 1937, so as to include therein a certain additional portion of the City of Long Beach within which it shall be unlawful, except upon prior approval, by vote of the qualified electors of the City, to erect, construct or install any structure, foundation, derrick, machinery or apparatus for the purpose of drilling for, pumping or producing oil, gas or other hydrocarbon substances from any well or wells; and defining the meaning of the term "person" within the scope of said ordinance.

The people of the City of Long Beach do ordain as follows:

That certain ordinance adopted by the people of the City of Long Beach at a special municipal election held on the 9th day of March, 1927, entitled "An ordinance making it unlawful to erect, construct or install any derrick, machinery or apparatus for the purpose of drilling for, pumping or producing oil, gas or other hydrocarbon substances from any well not existing at the time this ordinance takes effect, or to maintain, pump or operate such new well, within certain portions of the City of Long Beach, repealing Ordinances Numbers C-282 and C-528 and providing penalties for the violation of this ordinance," said ordinance being set forth in full in Ordinance No. C-615, Ordinances of the City of Long Beach, the ordinance calling said special municipal election, as revised or amended by the people of the City of Long Beach at a special munic-

ipal election held on the 15th day of June, 1937, be and the same is hereby amended to read as follows:

Section 1. It is hereby declared to be unlawful for any person, whether as principal, agent, servant, employee, or otherwise, to erect, construct or install, or cause to be erected, constructed or installed, any derrick, machinery or other apparatus or equipment for the purpose of drilling for oil, gas or other hydrocarbon substances, or pumping or producing the same from any well not actually being drilled or existing at the time this ordinance takes effect, within that portion of the City of Long Beach described as follows:

Beginning at the intersection of the line of ordinary high tide of the Pacific Ocean with the westerly boundary line of the City of Long Beach; thence northerly along said westerly boundary line of the City of Long Beach and following its various courses to its intersection with a formerly northwesterly boundary line of the City of Long Beach as said boundary line existed prior to the annexation election of December 28th, 1923; thence northeasterly along said former northwesterly boundary line of the City of Long Beach to the southerly line of Willow Street; thence easterly along said southerly line of Willow Street to a line three hundred feet (300′) west of and parallel to the westerly line of California Avenue, said line three hundred feet (300′) west of and parallel to the westerly line of California Avenue being also a boundary line of the City of Long Beach; thence south along said line three hundred feet (300′) west of and parallel to the westerly line of California Avenue to the northeasterly line of the private right-of-way of the Pacific Electric Railway Company; thence southeasterly along the northeasterly line of said private right-of-way and across all intersecting streets and alleys to its intersection with the easterly boundary line of the City of Long Beach at the Orange County line; thence southerly along said boundary line of the City of Long Beach to the line of ordinary high tide of the Pacific Ocean and thence westerly along said line of ordinary high tide of the Pacific Ocean to the point of beginning, except not more than one (1) well on any acre in that portion of said defined area lying west of the west line of the Los Angeles County Flood Control District right-of-way.

Section 2. Except as in this Section hereinafter provided, it is hereby declared to be unlawful for any person, whether as principal, agent, servant, employee, or otherwise, to erect, construct or install, or cause to be erected, constructed or installed any structure, foundation, derrick, machinery or other apparatus or equipment for the purpose of drilling for oil, gas or other hydrocarbon substances, or pumping or producing the same from any well or wells within that portion of the City of Long Beach described as follows:

Beginning at the intersection of the easterly line of the Los Angeles County Flood Control right-of-way of the Los Angeles River channel with the northerly line of Seaside Boulevard; thence south along the southerly prolongation of said easterly line of the Los Angeles County Flood Control right-of-way, 40.02 feet to the beginning of a tangent curve concave to the east and having a radius of 3,175.98 feet; thence southeasterly along said curve to the intersection with the line of ordinary high tide of the Pacific Ocean, being the true point of beginning of this description; thence continuing southeasterly along said curve to the end of said curve, distant 2,915.95 feet, measured along the arc from the beginning of said curve; thence South 52° 36′ 17″ East, 3,400.00 feet to a point; thence South 17° 00′ East to the southerly boundary of the City of Long Beach; thence easterly along said southerly boundary to the easterly boundary of the City of Long

Beach, being the common boundary separating Los Angeles County and Orange County; thence northeasterly along said easterly boundary of the City of Long Beach to the line of ordinary high tide of the Pacific Ocean; and thence westerly along said line of ordinary high tide of the Pacific Ocean to the true point of beginning.

All or any portion of the aforegoing described real property may be designated as a permitted oil drilling area, thereby resulting in the release or withdrawal of such said designated area from the prohibitory boundaries hereinabove established, if, prior to, and as an express condition precedent to any such designation being made, the City Council shall, at any City election wherein all City qualified electors are entitled to vote, submit the proposition of establishing and designating such area as a permitted oil drilling area, and a majority of those voting thereon vote in favor of such proposition.

Section 3. It is hereby declared to be unlawful for any person, whether as principal, agent, servant, employee, or otherwise, to erect, construct or install, or cause to be erected, constructed or installed, any derrick, machinery or other apparatus or equipment for the purpose of drilling for oil, gas or other hydrocarbon substances, or pumping or producing the same from any well within five hundred feet (500′) of any real property used for public school purposes or any building used for hospital purposes at any place within the City of Long Beach; provided, however, that this Section shall not apply to any well which was actually being drilled or which existed on the 9th day of March, 1927, when the ordinance which is hereby amended was originally adopted by the people of the City of Long Beach.

Section 4. If any section, subsection, sentence, clause, or phrase of this ordinance, or the application of any thereof to any person or circumstance be held to be invalid for any reason, such invalidity shall not affect the validity of any other provision or application of this ordinance which can be given effect without the invalid provision or application; and to this end the people of the City of Long Beach hereby declare that the provisions of this ordinance are severable and that they would have passed this ordinance and each and every section, subsection, sentence, clause and phrase thereof, irrespective of the fact that any one (1) or more other sections, subsections, sentences, clauses or phrases, or the application of any thereof to any person or circumstances be declared invalid.

Section 5. The term ″person″, as used herein, shall be construed to mean, refer to, and include, an individual; a co-partnership; joint adventure; an unincorporated association; a trust; a private corporation; a public corporation; a municipal corporation; a County; a State; a national government; a municipal, County, State, or Federal agency, board or commission; a water district; a utility district; a flood control district; a body corporate and politic; a political subdivision; and a drainage, irrigation, levee, reclamation, or water conservation district; whether acting for himself, or itself, or in any representative capacity.

Section 6. Every person, whether as principal, agent, servant, employee, or otherwise, violating any of the provisions of this ordinance, shall be deemed guilty of a misdemeanor and upon conviction thereof shall be punished by a fine not exceeding five hundred dollars ($500.00) or by imprisonment not exceeding six (6) months, or by both such fine and imprisonment; and every such person shall be deemed guilty of a separate offense for each day during any portion of which the violation of any of the provisions of this ordinance is committed, continued, or permitted.

Section 7. Ordinances Numbers C-282 and C-528, and all other ordinances and regulations and parts thereof, of the City of Long Beach in conflict herewith are hereby repealed; provided, however, that nothing herein contained shall preclude the City Council or the Board of Harbor Commissioners of the City of Long Beach from adopting, and/or repealing, nor shall it operate to repeal, limit or modify, any ordinance which said bodies, respectively, deem, may deem, or have deemed, reasonable and necessary for the regulation and control of the erection, use, maintenance and abandonment of structures or facilities for the production, treatment, refining or disposition of oil, gas or other hydrocarbons, or any products manufactured or otherwise obtained therefrom, within any portion of the City of Long Beach in which the drilling, operation, maintenance, redrilling and deepening of oil wells is not prohibited by this ordinance.

Note—The above ordinance amending a certain Initiative Ordinance adopted by the people at an election held on March 9, 1927, as amended at an election on June 15, 1937, was further amended by the foregoing ordinance submitted by the City Council to the electorate and was adopted at an election held February 9, 1956, in accordance with Ordinance No. C-3554 calling said election.

(ORD-16-0027 § 1(Exh. A), 2016; Prior code § 3300.4.5)

12.64.040 Initiative ordinance amendment—February 27, 1962.

An ordinance making certain determinations, and designating certain submerged land areas within the City of Long Beach, presently contained within the boundaries of a prohibited drilling area, as permitted oil drilling areas, in accordance with the procedure prescribed in that certain initiative ordinance adopted by the people of the City of Long Beach at a Special Municipal Election held on the 9th day of March, 1927, entitled "An ordinance making it unlawful to erect, construct or install any derrick, machinery or apparatus for the purpose of drilling for, pumping or producing oil, gas or other hydrocarbon substances from any well not existing at the time this ordinance takes effect, or to maintain, pump or operate such new well, within certain portions of the City of Long Beach, repealing Ordinances Numbers C-282 and C-528 and providing penalties for the violations of this ordinance", as amended by those two (2) certain ordinances adopted by the people of the City of Long Beach at Special Municipal Elections held on the 15th day of June, 1937, and the 9th day of February, 1956, respectively; and imposing certain conditions, limitations and restrictions upon the use of said submerged land areas as permitted oil drilling areas.

The people of the City of Long Beach do ordain as follows:

Section 1. It is hereby found and determined:

(a) That it would be in the best interests of the City of Long Beach and the State of California to authorize and approve the institution of a plan for the controlled exploration and exploitation of the oil and gas reserves underlying the presently undeveloped portion of the tide and submerged land areas heretofore granted to the City by the State of California, and located easterly of and outside the Harbor District of the City, as said district boundaries are defined as of the effective date of this ordinance. Said presently undeveloped portion of tide and submerged lands (which shall not be deemed to include any of the tide and submerged lands committed to the Richfield Oil Corporation Parcel "A" Drilling and Operating Contract and presently under development from the Harbor District) shall, for convenience, be sometimes hereinafter referred to as the "Offshore Area".

(b) That the results of detailed engineering reports and the interpretations of geologic and seismic data indicate that undeveloped oil and gas reserves in economically recoverable quantities underlie certain portions of the publicly and privately owned upland properties located easterly of

Pine Avenue in this City, and adjacent to and northerly of the Offshore Area. Said upland properties shall, for convenience, be sometimes hereinafter collectively referred to as the "Townlot Area".

(c) That the said Offshore Area and Townlot Area are included within the geographic boundaries of a Subsidence Area, as heretofore fixed and established by the State Oil and Gas Supervisor pursuant to the provisions of Section 3336 of the California Public Resources Code.

(d) That the results of studies by qualified engineers which have been conducted in certain segments of said Subsidence Area, and the demonstrated beneficial effects derived as a consequence of putting the recommendations so made into operation, indicate that the only feasible method that can be expected to prevent or arrest subsidence in such an area is by repressuring the subsurface oil and gas formations thereunder; and that such repressuring operations, in addition thereto, should increase the amount of oil ultimately recoverable from the formations underlying such area and protect the oil or gas in such lands from unreasonable waste.

(e) That unit or cooperative development and operation of the pool or pools (as hereinafter defined) underlying the said Offshore Area and Townlot Area is necessary in order to prevent and insure against the occurrence of subsidence. "Pool" shall mean an underground reservoir containing, or appearing at the time of determination to contain, a common accumulation of crude petroleum oil or natural gas or both. Each zone of a general structure which is separated from any other zone in the structure is a separate pool.

Section 2. Reference is made to that certain Initiative Ordinance adopted by the people of the City of Long Beach at a Special Municipal Election held on the 9th day of March, 1927, as subsequently amended by those two (2) certain ordinances adopted by the people of said City at Special Municipal Elections held on the 15th day of June, 1937, and the 9th day of February, 1956, respectively, entitled "An Ordinance making it unlawful to erect, construct or install any derrick, machinery or apparatus for the purpose of drilling for, pumping or producing oil, gas or other hydrocarbon substances from any well not existing at the time this ordinance takes effect, or to maintain, pump or operate such new well, within certain portions of the City of Long Beach, repealing Ordinances Numbers C-282 and C-528 and providing penalties for the violations of this ordinance", and particularly to Section 2 of said ordinance, as amended, which provides as follows:

Section 2. Except as in this Section hereinafter provided, it is hereby declared to be unlawful for any person, whether as principal, agent, servant, employee, or otherwise, to erect, construct or install, or cause to be erected, constructed or installed any structure, foundation, derrick, machinery or other apparatus or equipment for the purpose of drilling for oil, gas or other hydrocarbon substances, or pumping or producing the same from any well or wells within that portion of the City of Long Beach described as follows:

Beginning at the intersection of the easterly line of the Los Angeles County Flood Control right-of-way of the Los Angeles River channel with the northerly line of Seaside Boulevard; thence south along the southerly prolongation of said easterly line of the Los Angeles County Flood Control right-of-way, 40.02 feet to the beginning of a tangent curve concave to the east and having a radius of 3,175.98 feet; thence southeasterly along said curve to the intersection with the line of ordinary high tide of the Pacific Ocean, being the true point of beginning of this description; thence continuing southeasterly along said curve to the end of said curve, distant 2,915.95 feet, measured along the arc from the beginning of said curve; thence South 52° 36′ 17″ East, 3,400.00 feet to a point; thence South 17° 00′ East to the southerly boundary of the City of Long Beach; thence easterly along said southerly boundary to the easterly boundary of the City of Long Beach, being the common boundary separating Los Angeles County and Orange County; thence northeasterly along said easterly boundary of the City of Long Beach to the line of

ordinary high tide of the Pacific Ocean; and thence westerly along said line of ordinary high tide of the Pacific Ocean to the true point of beginning.

All or any portion of the aforegoing described real property may be designated as a permitted oil drilling area, thereby resulting in the release or withdrawal of such said designated area from the prohibitory boundaries hereinabove established, if, prior to, and as an express condition precedent to any such designation being made, the City Council shall, at any City election wherein all City qualified electors are entitled to vote, submit the proposition of establishing and designating such area as a permitted oil drilling area, and a majority of those voting thereon vote in favor of such proposition.

The above-described area constitutes the undeveloped portion of the tide and submerged lands referred to as the Offshore Area in Subsection (a) of Section 1 hereof.

Section 3. Subject to the conditions, limitations and restrictions hereinafter in Section 4 provided, the necessary number of offshore islands, in no event to exceed four (4), are hereby authorized to be located and constructed within the geographic boundaries of the said Offshore Area, as above-described in Section 2 hereof, and to be utilized as surface drillsite areas for the exploration and exploitation of the oil and gas reserves underlying said undeveloped Offshore Area and the adjacent Townlot Area. It is not intended, nor shall the authorization herein granted ever be construed, either directly or by implication, as permitting or sanctioning the erection, construction, installation or maintenance of any structure, foundation, derrick, machinery or other apparatus or equipment for the purpose of drilling for oil, gas or other hydrocarbon substances, or pumping or producing the same from any well or wells, upon and from surface locations within said Offshore Area boundaries other than exclusively from the surface locations provided on said offshore island drill sites.

Section 4. The construction and use of said offshore islands are expressly predicated upon and subject to compliance with the following conditions, limitations and restrictions:

(a) The northerly boundary of any of said islands shall not be closer than two thousand feet (2,000′), measured from the centerline of Ocean Boulevard, as said boulevard exists as of the effective date of this ordinance.

(b) The actual area of each of said islands shall be approximately ten (10) acres.

(c) Subject to the provisions of Subsections (a) and (b) hereof, the precise location of each of said islands shall be established by resolution of the City Council as permitted oil drilling areas. It is recognized in this regard that the precise location of each of said islands cannot be determined until after a programmed number of core holes have been drilled in the Offshore Area for the purpose of defining the extent of the oil and gas reserves in said area.

(d) All improvements erected upon and oil operations conducted upon said offshore islands shall be compatible with the City′s general plans for commercial, scenic and recreational development.

(e) All drilling and production operations shall be conducted in a manner consistent with approved conservation practices, and so as to provide the maximum safeguards against drainage losses, subsidence damage, noise, contamination, unsightliness and detriment to the natural beauty of the surrounding area.

(f) The oil and gas reserves underlying the Offshore Area shall be exploited only in accordance with a uniform and systematic plan of development, in an economic manner, and consistent with the best oilfield practices prevailing in the Wilmington Oil Field. To this end, the City shall reserve the right, in any agreement entered into for the development of the subject area, to control the rates of production of the oil and gas and the repressuring operations and practices to be conducted. Any such agreement shall provide that a program of complete pressure maintenance by water injection shall be instituted at the inspec-

tion of drilling operations, that the City shall have the right to order the shut-in of high gas-low oil ratio and high water-low oil ratio wells, that the respective drilling and operating contractor expressly agrees to waive any and all damages claimed to have resulted as a consequence of water injection operations and practices conducted or ordered by the City, that the City shall have the unilateral right, without the necessity of obtaining the consent or approval of the contractor, to commit the subject area to unitized operation or to a cooperative type agreement providing for coordinated repressuring operations, that in the event the subject area is committed to a unit plan of development the City shall have the sole right to vote the entire working interest assigned to said area, and that the contractor agrees, under unitized operations, if payment is provided to be made in oil and/or gas, to accept payment in allocated oil and/or gas as the equivalent of oil and/or gas actually produced and saved from the subject area.

(g) The Offshore Area shall be developed as a single tract.

(h) No surface drillsites shall be made available for use for the directional drilling of oil and gas wells to be bottomed beneath the Townlot Area unless a satisfactory plan of complete pressure maintenance is first submitted to and approved by the City and the appropriate State officials.

(i) All oil tank farms are to be located in the Harbor District, and all final dehydration, treatment separation, storage, gauging and shipment of offshore oil and gas shall be accomplished from Harbor District site locations. The use of submarine pipelines is authorized in said Offshore Area, and said lines shall be laid from the offshore islands for the purpose of transporting the oil, gas, fresh water, and general purpose lines, together with power and telephone cables. All machinery, equipment, materials and supplies utilized in conjunction with the drilling and production operations, other than that transported by submarine pipeline, shall be transported from the Harbor District only, regardless of the proximity of the island to be served to the Harbor District. The provisions of this Subsection shall apply not only to the City's operations, but equally as well to any other operator conducting permitted drilling and production operations from one or more of said offshore islands.

(j) Each offshore island shall be landscaped in such a manner as to provide complete screening for the well sites and surface facilities. The landscaping shall be designed to blend with the shoreline and add to the natural beauty of the offshore area. Drilling masts and other portable well servicing equipment, visible above the landscape, shall be removed when not needed for the conduct of operations. Wellhead facilities shall be installed below the surface.

Note—The above ordinance designating certain submerged land areas as permitted oil drilling areas in accordance with the procedure prescribed in that certain Initiative Ordinance adopted by the people at an election held on March 9, 1927, as amended at those two (2) elections on June 15, 1937, and February 9, 1956, was adopted at an election held February 27, 1962, in accordance with Ordinance No. C-4213 calling said election. (ORD-16-0027 § 1(Exh. A), 2016; Prior code § 33004.6)

Title 13

(RESERVED)

Title 14

STREETS AND SIDEWALKS

Chapter 14.04 Obstruction of Streets and Sidewalks

14.04.010 Obstructing free passage.

14.04.015 Work within or on a public street or right-of-way, obstruction of a public street or right-of-way - permit required, regulations, penalties for non-compliance.

14.04.020 Painting on sidewalk.

14.04.030 Selling on streets prohibited.

14.04.040 Goods on sidewalks prohibited.

14.04.050 Reserved.

14.04.060 Bulletin boards.

14.04.070 Reserved.

Chapter 14.06 Reserved

Chapter 14.08 Excavations, Street Improvements and Temporary Occupation of Rights-of-Way

Article I. General Provisions

14.08.010 Definitions.

Article II. Permits

14.08.020 Public works permit—Required.

14.08.030 Public works permit—Application.

14.08.040 Public works permit—Fees.

14.08.050 Public works permit—Deposit or bond.

14.08.060 Public works permit—Issuance.

14.08.070 Public works permit—Failure to obtain.

14.08.080 Public works permit—Defective work.

14.08.090 Default.

14.08.100 Liability insurance.

14.08.110 Exemption from fees, bonds and deposits.

14.08.120 Public works permit—Terms and conditions.

14.08.130 Refusal to issue authorized.

14.08.140 Public works permit—Construction standard.

Article III. Construction Standards

14.08.150 Removal of materials and debris.

14.08.160 Inspection.

14.08.170 Subsurface installations—Depths.

14.08.180 Backfill—Standards.

14.08.190 Backfill—Temporary road surface.

14.08.200 Right-of-way surface replacement.
14.08.210 Backfill—Responsibility.
14.08.220 Safe crossings to be maintained.
14.08.230 Gutters and watercourses.
14.08.240 Plan to conform to actual installation.
14.08.250 Abandonment of facilities.
14.08.260 Repair of ruptured oil and gas lines.
14.08.270 Temporary occupancy standards.
14.08.280 Warning lights and barricades.
14.08.290 Relocation of existing interferences.
14.08.300 Basement appurtenances.
14.08.310 Plans.
14.08.320 Work stoppage authorized.

Article IV. Excavations Adjacent to Rights-of-Way

14.08.330 Public works permit—Additional terms and conditions.
14.08.340 Public works permit—Bond required.

Chapter 14.12 Excavation Warning Devices

14.12.010 Violation deemed nuisance.
14.12.020 Determination of nuisance.
14.12.030 Warning device placement—Authorized.
14.12.040 Warning device placement—Fee—Amount.
14.12.050 Warning device placement—Fee—Collection.
14.12.060 Warning device placement—Statement of fee.
14.12.070 Liability of responsible person.

Chapter 14.14 Public Walkway Occupancy Permits

14.14.010 Definitions.
14.14.020 General requirements.
14.14.030 Public walkways occupancy permit—Application.
14.14.035 Fees, refunds and security deposits.
14.14.040 Public walkway occupancy standards.
14.14.045 Public walkways dining permits and entertainment permits.
14.14.050 Reserved.
14.14.055 Entertainment on the public right-of-way.

Chapter 14.15 Parklets

14.15.010 Definitions.
14.15.020 General requirements.

14.15.030 Parklet permit—Application filing and process.
14.15.035 Fees, refunds and security deposits.
14.15.040 Parklet standards.
14.15.045 Parklet dining permits and entertainment permits.
14.15.055 Entertainment on the public right-of-way.
14.15.060 Parklet permit—Failure to obtain.
14.15.070 Indemnification of City.
14.15.080 Insurance.
14.15.090 Default.
14.15.100 Revocation and nonrenewal.
14.15.110 Appeal—City Council.

Chapter 14.16 Benches

14.16.010 Definitions.
14.16.020 Compliance required.
14.16.030 Permit required.
14.16.050 Removal procedure.
14.16.060 Rules and regulations.
14.16.070 Enforcement.
14.16.080 Insurance.
14.16.090 Standards for issuance of bench permits.

Chapter 14.20 Newsracks

14.20.010 Definitions.
14.20.020 Roadway obstruction prohibited.
14.20.030 Obstruction of sidewalk use prohibited.
14.20.040 Placement regulations.
14.20.050 Identification required.
14.20.060 Violation—Removal.
14.20.070 Violation—Restoration to compliance.
14.20.080 Appeal—Director of Public Works.
14.20.090 Appeal—City Council.
14.20.100 Violation—Summary removal.
14.20.200 Belmont Shore pilot program area—Additional requirements.
14.20.210 Downtown pilot program area.
14.20.220 Naples Island pilot program area—Additional requirements.
14.20.300 Queens Way Bay newsrack program area—Additional requirements.

Chapter 14.24 Railroads Obstructing Streets

14.24.010 Blocking crossings prohibited.

14.24.020 Offensive substance discharge prohibited.
14.24.030 Discharging steam on streets prohibited.
14.24.040 Unnecessary noise.
14.24.050 Freight car switching hours.
14.24.060 Crossing signal resolution—Authorized.
14.24.070 Crossing signal resolution—Copy service.
14.24.080 Crossing signal resolution—Appeal hearing.
14.24.090 Crossing signal resolution—Compliance—Order.
14.24.100 Crossing signal resolution—Compliance—Time limit.

Chapter 14.28 Trees and Shrubs

14.28.010 Definitions.
14.28.020 Planting.
14.28.030 Maintenance—Public Works Department duties.
14.28.040 Maintenance—Permission required.
14.28.050 Planting or removing—Conformance required.
14.28.060 Planting or removing—Permit required.
14.28.070 Open space around trunk.
14.28.080 Harmful substances prohibited.
14.28.090 Plantings in parking strip.
14.28.100 Protection during construction.
14.28.110 Nuisance abatement.
14.28.120 Interference with enforcement prohibited.

Chapter 14.32 Reserved

Chapter 14.36 House Numbers on Curbs

14.36.010 Permitted when.
14.36.020 Permit procedure.
14.36.030 Uniform standards.
14.36.040 Prohibited where.
14.36.050 General restrictions.

Chapter 14.40 Selling of Tickets of Admission to Places of Public Assemblage in Public Places and Places Open to the Public

14.40.010 Definitions.
14.40.020 Prohibition of sales.
14.40.030 Exception.

Chapter 14.44 Temporary Fencing and Graphic Screening

14.44.010 Purpose.
14.44.020 Definitions.
14.44.030 Permit required.
14.44.040 Graphic screening.
14.44.050 Maintenance.

Chapter 14.48 Encroachments Into the Public Right-of-Way

14.48.010 Purpose.
14.48.020 Definitions.
14.48.030 Encroachments below grade.
14.48.040 Encroachments above grade.
14.48.050 Permits required.

CHAPTER 14.04 OBSTRUCTION OF STREETS AND SIDEWALKS

14.04.010 Obstructing free passage.

A. No person shall congregate upon or use any street, alley, pier or park in such a manner as to obstruct the free use of all or any part of said street, alley, pier or park.

B. No person shall obstruct or partially obstruct the parking lane of the street except for legally parked or standing motor vehicles or as allowed by permit pursuant to Chapter 14.06. (ORD-24-0002 § 13, 2024; Ord. C-6347 § 1, 1987: prior code § 3410.9)

14.04.015 Work within or on a public street or right-of-way, obstruction of a public street or right-of-way - permit required, regulations, penalties for non-compliance.

A. Definitions.

"Activity or Work Permissible within a Public Street" is defined as any work or activity permitted by this Code or authorized by the Director of Public Works.

"After Hours Work" is defined as construction and obstruction activity in public right-of-way during outside of Regular Hours Work.

"Emergency Work" is defined as immediate and unplanned action that must be taken to alleviate a hazardous condition, which represents an immediate threat to life, health, safety, or property. This includes continuous efforts to affect the restoration of interrupted utility services (electrical, water, gas, sewer, wastewater and telecommunications).

"Parking Lane Closure" is defined as any activity within an existing designated parking lane where parking space is reserved and parking for public use is not allowed.

"Peak Hour Construction and Right-of-Way Obstruction Regulations" is defined as all regulations contained in this Section that control and limit all construction and obstruction activity in the public right-of-way during After Hours Work on Public Right-of-Way or Peak Traffic Hours on Street Classifications Subject to Work Hour Restrictions.

"Peak Traffic Hours" is defined as Monday through Friday, 6:00 a.m. to 8:30 a.m. and 3:30 p.m. to 6:30 p.m.

"Regular Hours Work" is defined as construction and obstruction activity in the public right-of-way during Monday through Friday from 7:00 a.m. to 4:00 p.m.

"Right-of-Way" means any easement or land owned by the City and used or designated for use as a street, parkway, alley, utility corridor, walkway, promenade, or bike path, and the surfaces thereof, and the airspace above such surfaces and the subsurface area below such surfaces and includes any right-of-way to be dedicated in the future.

"Sidewalk Closure" is defined as any activity within the sidewalk (property line to curb) which reduces the usable sidewalk width, interrupts pedestrian traffic and is a possible cause of safety hazard.

"Street Classifications Subject to Work Hour Restrictions" is defined as Temporary Street Closure or Traffic Lane Closure on major and secondary highways, or collector streets, as designated in the Transportation Element of the General Plan.

"Temporary Street Closure" is defined as the temporary restriction of all vehicular traffic for construction purposes authorized by a valid permit, and an approved Traffic Management Plan.

"Traffic Lane Closure" is defined as any activity within the public street, travel lane, bike lane or in an alley, which reduces the usable width to the point where one or more lanes of traffic cannot move safely and efficiently.

"Traffic Management Plan" is defined as a plan that addresses traffic control requirements in a construction area, and along detour routes and pedestrian reroute plan. The operation of a Traffic Management Plan is affected by the project's construction phasing, construction schedules, and work area required by the contractor, and shall be consistent with the contractor's project requirements, provided by the Department of Public Works.

"Worksite Traffic Conditions" is defined as those physical conditions, including signage, signal devices, operation of equipment, and conduct of workers (which are required by law), permit and plans to provide adequate street space, and accommodate traffic demands, particularly during Peak Traffic Hours on Traffic Lane Closure.

B. Permit required. No person shall affect a Traffic Lane Closure, Sidewalk Closure or Parking Lane Closure or perform work within or on any Public Street or public Right-of-Way, or obstruct any Public Street or public Right-of-Way for any reason without first applying for and obtaining a permit from the City. The person or entity requesting the permit shall pay all applicable permit fees required for any Activity or Work Permissible within a Public Street or public Right-of-Way.

1. Exemption from obtaining permit prior to any work or obstruction on Public Street or Right-of-Way. Emergency Work as defined above shall be exempt from Peak Hour Construction and Right-of-Way Obstruction Regulations during Peak Traffic Hours on Street Classifications Subject to Work Hour Restriction. Advance notification shall be given to the Department of Public Works prior to the work being initiated. A permit shall be obtained within forty-eight (48) hours of beginning the Emergency Work.

2. Exemption from Peak Hour Construction and Right-of-Way Obstruction Regulations for Public Works Approved Non-Emergency Work. The permittee or applicant shall submit the request with a complete permit application to the Department of Public Works. Applicable Traffic Management Plan and After Hours Work or Peak Traffic Hours shall be approved by the Department of Public Works.

3. Applicable fees for processing applications shall be applied. A fee for processing each request submitted pursuant to the provisions of paragraph 2 of this Subsection shall be established by City Council resolution.

C. Application for permit. Any application for a permit under this Section shall include the following information:

1. The name, address and telephone number of the applicant and the person responsible for the work or obstruction of the public street or any right-of-way;

2. The name, location and area of the street or right-of-way for which the permit is desired; and

3. A description of the work to be done within the public street or right-of-way and an explanation of why the proposed obstruction of the public street or right-of-way is necessary.

4. Any other items as requested on the most current application form or requested during review of a permit application submittal.

D. Penalties for non-compliance.

1. Administrative penalties.

a. The failure to obtain a permit pursuant to this Section, the failure to abide by the Peak Hour Construction and Public Right-of-Way Obstruction Regulations contained in this Section, the failure to comply with Worksite Traffic Conditions or the violation of any special condition or requirement of a valid construction permit issued pursuant to the Long Beach Municipal Code, shall subject the violator to administrative penalties as set forth in Chapter 9.65, in an amount established by City Council resolution.

b. Any administrative penalty issued pursuant to this Section shall be governed by the provisions set forth in Section 9.65.060.

2. Criminal prosecution for multiple violations. Four (4) or more administrative citations issued to the same person or entity within twelve (12) months may constitute a misdemeanor under the Long Beach Municipal Code, may subject the violator to prosecution by the City and may subject the violator to other potential criminal penalties as allowed by law. (ORD-24-0002 § 13, 2024; ORD-19-0032 § 9, 2019; ORD-18-0020 § 1, 2018)

14.04.020 Painting on sidewalk.

No person shall apply paint, pigment, coloring or any other similar substance upon any street,

sidewalk, alley, way or pier in the City without first having obtained a permit from the Chief of Police. (ORD-24-0002 § 13, 2024; Ord. C-5784 § 1 (part), 1981: prior code § 3410.10(a))

14.04.030 Selling on streets prohibited.

No person shall sell, offer for sale, give or distribute any merchandise or matter of any manner or description whatsoever, including newspapers or printed matter, nor shall any person solicit contributions or donations from a position or place upon or in any public street in the City. The term "public street", as used in this Section, means and includes every highway, road, roadway, street, median, divider island, safety zone, alley, lane, course, place, trail, drive, bridge, viaduct or trestle laid out or erected as such by the public, or dedicated or abandoned to the public, or intended to be used by or for the general public, except such portions thereof as are used or prepared for use by pedestrians as sidewalks. (ORD-24-0002 § 13, 2024; Ord. C-5257 § 1, 1976: prior code § 3410.11)

14.04.040 Goods on sidewalks prohibited.

A. Except as provided in Chapters 5.73 and 14.14 herein, no person shall use any public sidewalk, public street, or that space between the public sidewalk and curb commonly known as parkway, or any space above any portion thereof, for displaying for sale, or for any other purpose, any goods or any other articles; or leave any goods, boxes, trucks, barrels, trunks or any other article or thing upon any public sidewalk, public street, or that space between the public sidewalk and curb commonly known as parkway, or any space above any portion thereof.

B. Except as provided in Chapters 5.73 and 14.14 herein, no person shall use any public sidewalk or unimproved public walkway or that space between the public sidewalk and curb commonly known as parkway, or any space above any portion thereof, for displaying for sale, or for any other purpose, any goods or any other articles; or leave any goods, boxes, truck, barrels, trunks or any other article or thing upon any public sidewalk, or that space between the public sidewalk and curb commonly known as parkway, or any space above any portion thereof, for a longer time than is necessary for the removal thereof from the transporting vehicle, into the place of business or residence to which the same is intended to be removed, or from the place of business or residence to the transporting vehicle to which the same is intended to be removed, and in no case shall said items be left in place for more than sixty (60) minutes subject, however, to the following exception and that set out in Section 14.04.050:

This Section shall not apply to electrical or other signs, garbage, waste, trash, awnings, balconies and other building projections otherwise regulated by this Code. (ORD-24-0002 § 13, 2024; Ord. C-6659 § 1, 1989: Ord. C-6347 § 2, 1987: Ord. C-5591 § 1 (part), 1980: prior code § 7532 (part))

14.04.050 Reserved.

Editor's note—ORD-24-0002 § 13, adopted Jan. 23, 2024, deleted § 14.04.050 entitled "Sidewalk sale permits," which derived from: Ord. C-7934 § 17, 2004; Ord. C-7044 § 1, 1992; Ord. C-5786 § 1, 1981; Ord. C-5591 § 1 (part), 1980; and prior code § 7532(b).

14.04.060 Bulletin boards.

No person, as principal, agent or servant, shall place or maintain any newspaper bulletin board upon, along or above any street or other public place except that the owner, proprietor or agent for a newspaper may place and maintain a newspaper bulletin board upon the wall or side of the building used for the printing, publishing, or sale of such newspaper; provided, that the newspaper bulletin board shall not project more than six inches (6") over any street, sidewalk, parking, alley or other public place. (ORD-24-0002 § 13, 2024; Prior code § 7533)

14.04.070 Reserved.

Editor's note—ORD-10-0016 § 2, adopted June 15, 2010, repealed § 14.04.070, which pertained to "sidewalk entertainment permits" and derived from: Ord. C-5832 § 1, 1982.

CHAPTER 14.06 RESERVED*

CHAPTER 14.08 EXCAVATIONS, STREET IMPROVEMENTS AND TEMPORARY OCCUPATION OF RIGHTS-OF-WAY†

ARTICLE I. GENERAL PROVISIONS

14.08.010 Definitions.

For the purpose of this Chapter, unless the context clearly requires a different meaning, the words, terms and phrases set forth in this Section are defined as follows:

"Applicant" means any person who applies for a permit under this Chapter.

"City" means the City of Long Beach, California, acting by and through the City Council.

"Contractor" means a person who, for a fixed sum, price, fee percentage or compensation other than wages, undertakes or offers to undertake or purports to have the capacity to construct, alter, repair, add to, improve or install surface improvements to streets or any part thereof, or makes or commences to make any excavation in or under

---

***Editor's note—**Chapter 14.06—Entitled "Temporary Occupation of Public Streets" was repealed by Ord. C-7933)

†**Note—**Prior ordinance history: Prior code §§ 7580, 7580.1—7580.9 and 7580.11—7580.49; Ord. C-5404; Ord. C-5661; Ord. C-5691; Ord. C-5701; Ord. C-6235; Ord. C-6346 § 1 (part), 1987; Ord. C-6399 §§ 1, 2, 1987; Ord. C-6451 § 2, 1987; Ord. C-6460 §§ 1, 2, 1988; Ord. C-7762 § 1, 2001.

the surface of any right-of-way for the installation, repair, or removal of any pipe, conduit, duct or tunnel in the right-of-way.

"Facilities" means pipes, pipelines, conduits, ducts, tunnels, poles, pole lines, cables, wires, vaults, traps, manholes, appliances, attachments and appurtenances used in connection therewith, for the purpose of the transmission, transportation or conveyance of any liquid or gaseous substance or substances, steam, air, electrical energy, or for communication purposes, or for the purpose of providing housing or protection for interior lines used, intended to be, or capable of being used for such purpose or purposes.

"Improvements" means the repair, modification, alteration, removal, or addition of facilities including, but not limited to, grading, paving, curbs, gutters, sidewalks, driveways, landscaping, street lighting, traffic signals, stairs, fences, walls, and any other work in the right-of-way.

"Permit" means the document issued to an applicant by the City under this Chapter and includes any amendment or supplement to any such permit.

"Permittee" means any person to whom a permit has been granted and issued under the terms of this Chapter.

"Person" means an individual, a receiver, a trustee, a co-partnership, a joint venture, a firm, an unincorporated association, a syndicate, a club, a society, a trust, a private corporation, a limited liability company, a public corporation, a municipal corporation, a County, a State, a national government, a municipal, County, State or federal agency, board or commission, a water district, a utility district, a political subdivision, a school district, a drainage, irrigation, levee, replenishment, reclamation or conservation district, and a flood control district, whether acting for himself/herself/itself or in any representative capacity.

"Right-of-way" means any easement or land owned by the City and used or designated for use as a street, parkway, alley, utility corridor, walkway, promenade, or bike path, and the surfaces thereof, and includes any right-of-way to be dedicated in the future. (ORD-19-0032 § 10, 2019; ORD-15-0003 § 1, 2015; Ord. C-7933 § 1, 2004)

ARTICLE II. PERMITS

14.08.020 Public works permit—Required.

A. No person shall perform any of the following activities without first obtaining a permit from the City Engineer authorizing such person to make such excavation, improvement, or temporary occupancy:

1. Make any excavation or improvements in, on, or under the surface of any right-of-way.

2. Use or occupy any right-of-way with a temporary occupancy consisting of any structure, container, materials, equipment, vehicles, or construction signs related to work on private property.

3. Make any excavation or improvements in, on, or under the surface of private property adjacent to any right-of-way, where lateral support to such right-of-way or improvements or property within such right-of-way is affected by such excavation. Such excavation shall be subject to the additional requirements specified in Article IV of this Chapter.

B. This Section shall not be applicable to excavations performed pursuant to contracts awarded for such work by the Board of Harbor Commissioners, or any activity for which a permit has been granted pursuant to Chapter 5.60. (ORD-19-0032 § 10, 2019; ORD-15-0003 § 2, 2015; Ord. C-7933 § 1, 2004)

14.08.030 Public works permit—Application.

A. The application for a permit under this Chapter shall be completed and filed with the City Engineer on the City's application form. Such permit application shall contain the name and street address of the applicant and shall describe in detail the excavation, improvement, or temporary occupancy to be made and the purpose of the excavation, improvement or temporary occupancy.

B. The application for excavation or improvements shall include seven (7) copies of a construction plan, twenty-four inch by thirty-six inch (24" x 36") size showing the proposed location of the

excavation or improvements and the dimensions thereof, together with such other details as the City Engineer may require on such plan. The plan shall be drawn to a scale of not more than twenty feet to the inch (20′ = 1″) and all copies thereof shall be to this scale. In addition, the application shall include evidence that the applicant is either:

1. Under contract with the City for the excavation or improvement; or

2. Authorized by law or a valid franchise to use the right-of-way for which an excavation or improvement is being requested; or

3. Authorized by a pipeline permit issued under Chapter 15.44 to use the right-of-way for which an excavation or improvement is being requested; or

4. Required to construct the excavation or improvement in conjunction with a building permit issued under Chapter 18.04 or a conditional use permit issued under Chapter 21.25.

5. All construction plans submitted with an application for an excavation permit relating to any hazardous liquid facilities shall be signed by a California registered civil and/or mechanical engineer and shall be accompanied by a certification, signed by the engineer, that all facilities are in compliance with either the Federal Hazardous Liquid Pipeline Safety Act of 1979 and its amendments, the California Pipeline Safety Act of 1981 and its amendments, or the City hazardous liquid pipeline ordinance and its amendments, whichever one applies.

6. The applicant shall provide any additional information which the City Engineer may deem necessary.

7. The application and permit shall be signed by the applicant or the authorized agent of the applicant. Any person signing the application and permit as an agent shall furnish written authorization signed by the applicant designating the person as an authorized agent for such purpose. (ORD-19-0032 § 10, 2019; ORD-15-0003 § 3, 2015; Ord. C-7933 § 1, 2004)

14.08.040 Public works permit—Fees.

A. Every applicant for a permit under this Chapter shall, when the application is filed, pay to the City a fee established by resolution of the City Council. If, at any time, the City Engineer determines that the original fee paid by the applicant is not sufficient to recover costs accrued by the City, then the City Engineer may, at his discretion, require that an additional fee be paid in an amount sufficient to recover said costs.

B. The holder of a valid franchise or permit, with the approval of the City Engineer, may pay pipeline permit and inspection fees on a monthly basis. The City Engineer shall bill the holder each month for the fees accrued during the preceding month. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.050 Public works permit—Deposit or bond.

A. Unless the City Engineer has authorized the permittee to perform the resurfacing or repair of the surface of any highway, public street or alley which may be removed in part or damaged by excavation, fill or temporary occupancy pursuant to a permit issued under this Chapter, the permittee shall deposit with the City the estimated cost of resurfacing or repairing the surface of the highway, public street or alley which may be damaged or destroyed.

B. To ensure compliance with conditions established in the permit, the City Engineer may require that the permittee furnish a surety bond, cash deposit, or letter of credit. All bonds shall comply with regulations issued by the City pursuant to Section 2.84.040 and shall be in an amount equal to twice the estimated cost of performing the work provided, however, that the minimum amount of such bond shall not be less than one thousand dollars ($1,000.00), and the minimum duration of the bond shall not be less than one (1) year. The condition of such bond shall be that the permittee will perform the work authorized by any permit issued pursuant to this Code in a good and workmanlike manner and to the satisfaction of the City Engineer. (ORD-19-0032 § 10, 2019; ORD-15-0003 § 4, 2015; Ord. C-7933 § 1, 2004)

14.08.060 Public works permit—Issuance.

A. If the applicant complies in all respects with this Chapter and with all other applicable

laws, rules, regulations and ordinances of the City, and pays the fees and deposits required by this Chapter, and said permit is not being sought for excavation in a right-of-way that has been constructed, reconstructed, or resurfaced within the previous sixty (60) months or slurry sealed within the previous twenty-four (24) months, then the City Engineer shall issue the permit.

B. However, permits for excavation in a right-of-way that has undergone construction, reconstruction or resurfacing within the previous sixty (60) months or slurry sealed within the previous twenty-four (24) months and are not for an emergency repair or a new service connection to an underground utility shall be deemed discretionary and subject to the approval of the City Council.

C. The City Council may authorize a discretionary permit under the following criteria:

1. The applicant can demonstrate that the permit for excavation in a right-of-way is immediately required for the general health, safety, and welfare of the City and, as such, cannot be delayed until the sixty (60) month or the twenty-four (24) month period, described above, has expired; and

2. The applicant can demonstrate that alternatives to excavating in the right-of-way, such as alternative routing or construction methods, including boring or excavation of the parkway, are not possible. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.070 Public works permit—Failure to obtain.

A. If a person begins excavation, the construction of any improvement, or occupies the right-of-way prior to obtaining a permit, the fee to obtain a permit shall be double the fee prescribed in Section 14.08.040, as a penalty for the failure to obtain a permit as required herein.

B. The payment of the penalty shall not relieve such person from fully complying with this Chapter in the execution of the work, or from penalties prescribed herein. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.080 Public works permit—Defective work.

If improvements are made under a permit and do not comply with the specifications and this Chapter, the City Engineer shall notify the person to whom the permit was granted and identify the defect or failure and the person shall, within a period of five (5) days after the service of the notice, proceed with reasonable diligence to remedy the defect or failure. If the person does not comply with the requirements of the notice, the City Engineer may order the improvements removed at the expense of the permittee and the permittee shall promptly reimburse the City for the cost of removal. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.090 Default.

A. If a permittee fails to comply with this Chapter, the City may notify the permittee in writing of the failure and identify the time within which the failure must be remedied. If the permittee fails or refuses to remedy the failure within the period of time stated in the notice, the City Engineer may revoke the permit and correct the failure. The permittee shall promptly reimburse the City for any expense incurred by the City in correcting the failure. If the permittee continues work after the permit has been revoked and if the City files suit to restrain the permittee or otherwise enforce this Chapter, then the permittee shall reimburse the City for its reasonable costs and expenses in connection therewith, including attorney fees and court costs.

B. Any structure, materials, barricade, vehicle or other object placed in the right-of-way in violation of this Chapter may be removed and stored in any convenient place by the City Engineer or City officer or employee designated by him/her. If it is removed, the City will notify the owner thereof, in writing, within three (3) working days after its removal. If the owner fails to claim the items and pay the expenses of removal and storage within thirty (30) days after removal, the items shall be deemed to be unclaimed property in possession of the Police Department and may be

disposed of pursuant to Chapter 2.78. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.100 Liability insurance.

Permittee shall secure and maintain, during the life of the permit, commercial general liability insurance as described in regulations issued by the City pursuant to Section 2.84.040. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.110 Exemption from fees, bonds and deposits.

If improvements or excavations are made under this Chapter by or for a municipal corporation, a County, a State, the federal government, a County, State or federal agency, board or commission, a drainage, irrigation, levee, replenishment, reclamation or water district, or a conservation or flood control district, then no fees or deposits shall be required prior to the issuance of the permit. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.120 Public works permit—Terms and conditions.

A. A permit shall be subject to the following conditions:

1. The permit shall be kept at the site of the work and shall be shown on demand to a City representative.

2. Permittee shall comply with California Government Code Section 4216 and following. Markings made pursuant to such Code Section shall not be made more than fourteen (14) calendar days prior to commencement of work and all markings shall be removed within two (2) months after the date markings are no longer needed or completion of the work, whichever occurs first.

3. The permit is nontransferable.

4. Improvements that will be maintained by the permittee may require the execution of a maintenance agreement with the City by the permittee.

5. For excavations or improvements, the City Engineer may revoke the permit unless the work begins within sixty (60) days after the issuance of the permit and is diligently performed to completion in the sole opinion of the City Engineer.

6. Permittee shall defend, indemnify and hold harmless the City, its officials and employees from and against all liability, loss, damage, demands, causes of action, proceedings, fines, penalties, costs, and expenses including attorney fees arising in any way from permittee's work under the permit and, furthermore, permittee shall obtain the commercial general liability insurance required in regulations issued by the City pursuant to Section 2.84.040.

7. Permittee shall, at permittee's sole expense, within ten (10) days after receipt of written notification from the City Engineer to do so, remove any improvement or facilities or, with the prior approval of the City Engineer, relocate them to a site designated by the City Engineer if at any time the improvement or facilities interfere with the use, repair, improvement, widening, change in grade, or relocation of any right-of-way or highway, or interfere with the construction of any subway, viaduct or other underground conduit or structure of any kind.

B. Either when the permit is issued or at any time thereafter until the completion of work or end of the temporary occupancy, the City Engineer may require additional conditions as he finds reasonably necessary for the protection of the right-of-way or highway, for the prevention of undue interference with traffic, or to assure the safety of persons using the right-of-way or highway. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.130 Refusal to issue authorized.

The City Engineer may refuse to issue a permit for improvements, excavation, or temporary occupancy in the right-of-way if the applicant has previously failed or refused to comply with this Chapter or if the excavation, improvement, or temporary occupancy will endanger the health and welfare of the residents of the area where the work will be performed. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.140 Public works permit—Construction standard.

All improvements shall be performed to the satisfaction of the City Engineer and in accordance with the "Standard Specifications For Public Works Construction" current edition, approved plans, and with this Chapter. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

ARTICLE III. CONSTRUCTION STANDARDS

14.08.150 Removal of materials and debris.

Any person performing or causing to be performed any work under this Chapter shall remove or cause to be removed from the site of any excavation or improvements all debris and excess materials within three (3) days after the completion of the work. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.160 Inspection.

At least two (2) working days prior to beginning work or temporary occupancy, permittee shall notify the City Engineer by giving permittee's name, permit number, type of work, starting date, time of construction, name of permittee's representative at the site and the underground service alert ticket number. After work begins, permittee shall notify the City Inspector of the daily work in progress and the type of inspection required. Failure to contact the City Engineer or his representative or the use of unacceptable materials or unacceptable work shall result in a stop construction notice being issued. Work shall not resume until corrections have been made. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.170 Subsurface installations—Depths.

A. No person shall install any conduit, duct, shoring structure or tunnel within three feet (3') below established grade of any right-of-way. Installations such as manholes, culverts, and catch basins, within three feet (3') below the established grade of the right-of-way will require the City Engineer's approval. For all other installations below the established grade of the right-of-way, the City Engineer may, at his or her discretion, upon receipt of sufficient evidence of necessity or public benefit, grant a special permit for these installations. A shoring structure shall include, but is not limited to, tiebacks, excavation, caisson/soldier piles, and raker/brace system. Tiebacks shall include, but is not limited to, the steel tendon, coupler, bearing plate, anchor plate, and element made of cementitious or similar material anchoring the tieback tendon in the soil or rock. For any structure left in place within the public right-of-way, applicants shall provide to the satisfaction of the City Engineer the as-built construction drawings and electronic files in current Geographic Information System (GIS) format, as per the latest official City datum plane to be used to update the City's GIS.

B. This Subsection shall apply to a proposed subsurface shoring system requiring tiebacks pursuant to a permit issued under this Chapter. When the tiebacks are no longer required due to the construction of a permanent retaining structure to maintain the stability of the subterranean structure, the tiebacks shall comply with the following:

1. Remove the tiebacks installed within eight feet (8') below the established grade of the right-of-way.

2. For any proposed tieback left in place between eight feet (8') and twenty feet (20') below the established grade of the right-of-way, applicants shall pay to the Public Works Department a mitigation fee, as determined by City Council resolution, for each tieback or portion thereof. This fee will be refunded upon proof of the entire tieback removal.

3. Where the tieback is allowed to remain in place at more than eight feet (8') below the established grade of the right-of-way, de-tension, decouple and remove the last extension of the tendon installed.

4. For any portion of the tieback made of cementitious or similar material left in place between eight feet (8') and twenty feet (20') below the established grade of the right-of-way, the compressive strength shall not exceed two thousand (2,000) pounds per square inch (psi).

5. Tiebacks shall maintain a minimum of two feet (2') clearance from any existing utility line or subsurface structure.

6. The City Engineer may modify the tieback requirements if extensive utility lines are present in the area or the street is on the Paving Moratorium List.

C. Exception: The City Engineer shall have the authority to exempt City-owned projects.

D. The City may issue an administrative citation and impose administrative penalties for violation of and failure to satisfy these requirements in accordance with Chapter 9.65. (ORD-19-0032 § 10, 2019; ORD-16-0019 § 1, 2016; ORD-15-0003 § 5, 2015; Ord. C-7933 § 1, 2004)

14.08.180 Backfill—Standards.

All excavations shall be backfilled in a manner satisfactory to the City Engineer and in accordance with the "Standard Specifications For Public Works Construction," current edition. If, at any time, the backfill fails and creates an unsafe condition, the City Engineer shall notify permittee of the failure and permittee shall repair the failure, at his/her/its own expense, to the satisfaction of the City Engineer. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.190 Backfill—Temporary road surface.

Whenever the pavement or surfacing is not immediately replaced, the surface of the backfill shall conform to the level of the adjoining street surface and shall be compacted so that it is hard and smooth enough to be safe for traffic to travel any legal rate of speed. If required by the City Engineer, permittee shall cover the backfilled area with temporary surfacing. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.200 Right-of-way surface replacement.

The surface of the right-of-way shall be replaced under the direction and supervision of the City Engineer at the sole cost and expense of the permittee, who shall maintain the surface for one (1) year after the date of completion of the work. If permittee fails to maintain the surface during said one (1) year period, the City Engineer may give to permittee a written notice specifying the manner in which the permittee has failed to maintain the surface and the work necessary to be performed to restore the surface. Permittee shall have five (5) days after notice is given to restore or repair the surface and, if permittee fails or refuses to do so, the City Engineer, if he deems it advisable, shall have the right to perform the restoration or repair. Permittee shall be liable for the actual cost of the work plus twenty-five percent (25%) for City's administration and overhead, and shall promptly pay these charges to the City on receipt of a statement from the City. All work shall be done in accordance with the requirements provided in the "Standard Specifications For Public Works Construction," current edition. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.210 Backfill—Responsibility.

Permittee shall maintain the surface of the backfill safe for vehicular traffic and pedestrian travel until the pavement or surfacing has been replaced and accepted by the City Engineer, and be liable for all accidents which occur to vehicles or pedestrians at the site of the excavation, until the pavement or resurfacing has been replaced. If it is impractical to maintain the surface of the backfill in a safe condition for traffic, then permittee shall maintain barriers and red lights around it until the pavement or surfacing has been replaced. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.220 Safe crossings to be maintained.

Permittee making any excavation shall maintain safe crossings for vehicles and pedestrian traffic at all street intersections and safe crossings for pedestrians at intervals not to exceed six hundred feet (600′). If any excavation is made across a public street, at least one (1) safe crossing shall be maintained at all times for vehicles and pedestrians. All materials excavated from the site shall be laid compactly along the side of the trench and kept trimmed to cause as little inconvenience as possible to public travel. If the right-of-way is not wide enough to hold the excavated material with-

out using part of an adjacent right-of-way, permittee shall erect and maintain a tight board fence on and along the sidewalk and keep a passage at least three feet (3') wide open and along the right-of-way. The excavation shall be performed in such a manner so that it does not interfere with access to fire stations and fire hydrants. Materials or obstructions shall not be placed within fifteen feet (15′) of fire hydrants. Passageways leading to fire escapes or firefighting equipment shall be kept free from piles of materials or other obstructions. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.230 Gutters and watercourses.

Permittee shall keep and maintain all gutters free and unobstructed for the full depth of the adjacent curb and for at least one foot (1′) in width from the face of the curb at the gutter line. When a gutter crosses an intersecting street, an adequate waterway shall be provided and maintained at all times. Permittee shall also provide for the flow of any watercourse intercepted during the excavation and shall restore the watercourse to the same condition that existed prior to the excavation, or shall make other provisions for water flow as the City Engineer may direct. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.240 Plan to conform to actual installation.

Every person owning, using, controlling or having an interest in any facilities in a right-of-way, except a service pipe or pipes, shall file in the office of the City Engineer, within sixty (60) days after the completion of installation of the facilities, a corrected record plan drawn to scale of not more than forty feet to the inch (40′ = 1″), showing the facilities provided, however, that if the plan filed with the City Engineer at the time the permit is issued is correct in every detail, permittee may make a notation to that effect on the plan, and the plan shall constitute compliance with this Section.

Final acceptance by the City Engineer for the work performed under the permit is dependent on full compliance with this Section. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.250 Abandonment of facilities.

Whenever facilities (except a service pipe or pipes) located under the surface of any right-of-way or the use of the facilities is abandoned or removed, the person owning, using, controlling or having any interest therein shall, within sixty (60) days after such abandonment, file in the office of the City Engineer a plan giving in detail the location of the facilities that were abandoned. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.260 Repair of ruptured oil and gas lines.

Whenever facilities used for the transportation of oil, gasoline, gas or other petroleum products rupture in such a manner that the contents escape, the person maintaining or using the facilities shall immediately make repairs to ensure future safe operation of the facilities in accordance with Section 15.44.140. If the office of the City Engineer is closed when the break occurs, such person may make an excavation in the right-of-way to repair the facilities without first obtaining a permit from the City Engineer. Any person making an excavation under these circumstances shall apply for a permit not later than ten o'clock (10:00) a.m. on the first day the office of the City Engineer is open following the rupture. When the facilities are near a leaking facility, the person maintaining such facilities shall uncover them for inspection if required to do so by the City Engineer. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.270 Temporary occupancy standards.

Any temporary occupancy of a right-of-way subject to this Chapter shall meet the following requirements:

A. The maximum width of the temporary occupancy including contents shall be eight feet (8′), unless otherwise approved by the City Engineer in accordance with this Chapter;

B. The temporary occupancy shall not be located in a manner which interferes with the flow of traffic;

C. Proper warning devices shall be provided for the temporary occupancy, to the satisfaction of the City Engineer;

D. The temporary occupancy shall be kept in good repair, free of graffiti, and in a safe and sanitary condition;

E. Temporary occupancy shall be located in a manner which does not interfere with visibility, vehicular mobility, or access to facilities. Locations shall be determined by the City Engineer at the time of application;

F. Permits will be issued for a period not to exceed ninety (90) days. On expiration, a new permit must be obtained on the basis of a new application. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.280 Warning lights and barricades.

A permittee shall keep and maintain barriers at each end of excavations, at such places as may be necessary along the excavation, and at the site of the improvements or temporary occupancy. Permittee shall place and maintain signs or barriers with letters not less than three inches (3") high, which state the name of the permittee. Permittee shall also place and maintain lights at ends of the excavation and at a distance of not more than fifty feet (50′) along the line thereof. For improvements and temporary occupancy, permittee shall place and maintain such lights as necessary to warn the public. Permittee shall maintain the lights until the excavation has been entirely refilled or until the improvements or temporary occupancy has been completed. Any lighting required by this Section shall be operated between sunset and sunrise of the next day. If permittee fails to place and maintain such barricades and lights the City may place and maintain such barricades and lights and permittee shall promptly reimburse the City in the manner provided in Chapter 14.12. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.290 Relocation of existing interferences.

Permittee shall move and relocate all interferences, including trees, poles, street lighting systems, parking meters, sewers, storm drain appurtenances and culverts located within the area of work which will interfere with the facilities, at the permittee's expense. Permittee shall obtain consent of the owner of the interference for the removal or relocation and shall furnish to the City Engineer satisfactory evidence of all necessary arrangements for removal or relocation of the interference prior to the issuance of the permit. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.300 Basement appurtenances.

No person shall construct or place a freight elevator or windows for basement lighting in the sidewalk area back of the established curbline of the street; provided, however, that existing freight elevators and window lights may be repaired or replaced if, in the opinion of the City Engineer, such freight elevators and window lights do not constitute a hazard to the public. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.310 Plans.

A. Plans shall be prepared for right-of-way improvements whenever, in the opinion of the City Engineer, such plans are necessary for the proper construction and supervision of the work.

B. When such plans are necessary, they may be prepared, at the option of the City Engineer, by a qualified licensed engineer employed by the applicant. Plans submitted by the licensed engineer must first be approved by the City Engineer before a permit is issued and work is started. The City Engineer may specify the type and quality of material on which the plans are drawn, the size of the sheets, the scale of the drawings, the size and wording of the title, the information to be shown on the plans, and all other details, including specifications, in connection therewith. All plans for the work shall become the property of the City and shall be filed in the office of the City Engineer. When the qualified licensed engineer submits the required plans, he/she shall pay to the City a processing fee in an amount prescribed by the City Council by resolution. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

14.08.320 Work stoppage authorized.

Whenever the City Engineer finds that any improvement or excavation is being constructed

contrary to or in violation of this Code or if it comes to the attention of the City Engineer that any work under a permit is dangerous, unsafe or a menace to life, health or property, the City Engineer shall order the work to be immediately stopped or shall order the alteration of any dangerous or unsafe condition. Such order shall be in writing and shall specify the manner in which the work is dangerous, unsafe or a menace to life, health or property. After receipt of the order the permittee shall not continue with any improvement or excavation until the work has been made to comply with this Chapter and with the instructions given by the City Engineer. (ORD-19-0032 § 10, 2019; Ord. C-7933 § 1, 2004)

ARTICLE IV. EXCAVATIONS ADJACENT TO RIGHTS-OF-WAY

14.08.330 Public works permit—Additional terms and conditions.

Whenever a permit is required under Subsection 14.08.020.A.3 to excavate, occupy, or use any space below any public sidewalk, public street, or other right-of-way adjacent to private property for the purpose of facilitating the construction of a structure to be erected on such private property, a permit issued under this Chapter shall be subject to the following additional terms and conditions:

A. Permittee shall comply with any and all other requirements set forth in this Chapter.

B. Permittee shall retain a professional civil engineer registered in the State of California and legally qualified to locate property lines and reference structures to such property line to prepare a plan and profile drawing on twenty-four inch by thirty-six inch (24" x 36") sheet showing all installations, substructures, utilities, water works, drainage facilities and appurtenances between the property line and the centerline of the street or to such further line as may be identified by the City Engineer. The street profiles shall be shown using elevations in reference to the official City datum plane. The location of any substructure or underground utility between the curb and the property line shall be verified by spot excavation prior to completion of plans. Any other substructure which may be affected by the proposed excavation or construction shall also be verified by spot excavation.

C. Permittee shall comply with all standard procedures established by the City Engineer in connection with uses on rights-of-way adjacent to private property where a private structure will be constructed with specific reference to the following uses:

1. Removal of a portion of the right-of-way adjacent to private property during a portion of the construction period; or

2. Constructing steel, concrete, or steel and concrete structures in rights-of-way for the purpose of providing lateral support for the right-of-way during the construction period and allowing these structures to remain in the right-of-way after completion of the building. (ORD-19-0032 § 10, 2019; ORD-15-0003 § 6, 2015)

14.08.340 Public works permit—Bond required.

In addition to the requirements set forth under Section 14.08.050, for excavations adjacent to the right-of-way, Permittee shall furnish a bond in an amount of one hundred and twenty-five percent (125%) of the total estimated cost of restoring the right-of-way to its original condition in the event of a failure of the lateral supports in the excavation site, as determined by the City Engineer. The bond may be a cash deposit, security equivalent to cash, or surety bond, provided in accordance with regulations issued by the City pursuant to Section 2.84.040. (ORD-19-0032 § 10, 2019; ORD-15-0003 § 6, 2015)

CHAPTER 14.12 EXCAVATION WARNING DEVICES

14.12.010 Violation deemed nuisance.

For the purposes of this Chapter any obstruction, encroachment or excavation in a public street or other public place, being at any time without such device as will properly warn the public of its existence, is defined as a public nuisance. (Prior code § 7550)

14.12.020 Determination of nuisance.

The Director of Public Service shall, upon knowledge of the existence of any obstruction, encroachment or excavation in a public street or other public place, determine whether such constitutes a public nuisance as defined in this Chapter. (Prior code § 7550.1)

14.12.030 Warning device placement—Authorized.

If the Director of Public Service finds the existence of a public nuisance as defined in this Chapter, he may cause lanterns or barricades to be placed, arranged, hung or set on or about the nuisance so as to properly warn the public thereof. (Prior code § 7550.2)

14.12.040 Warning device placement—Fee—Amount.

The person responsible for the existence of a "public nuisance" as defined in this Chapter, shall pay to the City a fee for the services rendered under this Chapter as determined by the City Council by resolution. (ORD-10-0014 § 19, 2010; Prior code § 7550.3)

14.12.050 Warning device placement—Fee—Collection.

All fees charged under this Chapter shall become a debt in favor of the City and every person liable shall be amenable to action therefor in any court of competent jurisdiction. (Prior code § 7550.4)

14.12.060 Warning device placement—Statement of fee.

The City Manager is vested with the authority to prescribe reasonable procedures for the rendition of statements for services rendered under this Chapter and for the manner and time for payment thereof. (Prior code § 7550.5)

14.12.070 Liability of responsible person.

No action pursuant to the provisions of this Chapter shall be construed to relieve the person responsible for the existence of any obstruction, encroachment or excavation in the public street, sidewalk, alley or way from any liability whatsoever arising out of the existence of such condition, nor shall any provision of this Chapter be construed to constitute an assumption of liability by the City of any duties imposed by law or contact upon any person. (Prior code § 7550.6)

CHAPTER 14.14 PUBLIC WALKWAY OCCUPANCY PERMITS*

14.14.010 Definitions.

A. "Dining" means the consumption of food or beverage.

B. "Downtown area" means the area bounded northerly by the centerline of Tenth Street; westerly by the centerline of Maine Avenue north of First Street, and the centerline of Golden Avenue south of First Street and the centerline of Golden Shore and its southerly prolongation; easterly by the centerline of Lime Avenue north of First Street and the centerline of Alamitos Avenue and its southerly prolongation south of First Street; southerly by the mean high tide line of the Pacific Ocean and its prolongation across the entrance to Pacific Terrace Harbor and Queens Way Landing boat basin.

C. "Existing permit" means a public walkways occupancy permit that has been issued by the City through its Department of Public Works.

D. "Existing permit in good standing" means a public walkways occupancy permit that has been issued by the City and is compliant with all laws and regulations, including the terms and conditions attached to that permit.

E. "Existing permit in good standing" does not include a permit the term of which has expired prior to the submission of a completed application for renewal, including all required documentation.

***Editor's note**—ORD-24-0002 § 14, adopted Jan. 23, 2024, amended Ch. 14.14 in its entirety to read as herein set out. Former Ch. 14.14, §§ 14.14.010—14.14.200 was entitled "Occupation of Public Walkways," and derived from: ORD-18-0031 § 1, 2018; ORD-18-0004 § 1, 2018; ORD-10-0032 §§ 1—4, 2010; Ord. C-7934 § 18, 2004; Ord. C-7796 §§ 1—4, 2002; Ord. C-7626 § 1, 1999; Ord. C-7580 §§ 1—3, and 5—7, 1998; Ord. C-7066 §§ 1, 2, 1992; and Ord. C-6659 § 2 (part), 1989.

F. "Minor modification of an existing permit" means a reconfiguration of the area occupied or a change of equipment or fixtures within the permit area with no change to the total square footage occupied, unless the Director of Public Works deems such change to be negligible.

G. "Obstruction" means any temporary or permanent structure or stationary object, including, but not limited to, signs, displays, barriers, furniture, plants or plant containers, musical equipment, or merchandise placed on a public walkway.

H. "Portable" means items capable of being carried or moved about without the use of heavy moving equipment.

I. "Public property" means all City property, including "public walkways", as defined in this Chapter, and public rights-of-way, and the underlayment or foundation thereof, and public improvements thereon, including landscaping on or in such property.

J. "Public walkways" means all or any portion of territory within the City set apart and designated for the use of the public as a thoroughfare for travel, including alley and sidewalk which is generally considered the right-of-way between the curbline and the adjacent property line intended for use by pedestrians. (ORD-24-0002 § 14, 2024)

14.14.020 General requirements.

A. No person shall use or occupy the public walkway with any obstruction for any purpose without first obtaining a written permit from the City through its Department of Public Works. Permits are not transferable. This Chapter shall not be applicable to any activity performed pursuant to and permitted by other Chapters of this Code, including, but not limited to Chapter 5.73.

B. Permits may only be issued to owners of property directly adjoining that portion of the public walkway upon which the obstruction is to be located, or to lessees of such property with the consent of the property owner.

C. The permit may be suspended or canceled at any time at the discretion of the Director of Public Works, in the event that it is determined that the obstruction would interfere with street improvement activities, construction activities, cleaning efforts or other similar activities. The permit may also be suspended at any time, if, in the discretion of the City Engineer or Fire Marshal, the obstruction threatens the public health or safety.

D. Permits for occupancy may contain restrictions for hours of the day or days of the week during which the obstruction may occupy a public walkway as determined by the Director of Public Works in his or her discretion.

E. Permits shall be issued for an initial period not to exceed one (1) year. Upon expiration, a new permit must be obtained on the basis of a new application or a renewal permit must be obtained. Notwithstanding the above, such permits may be terminated by the City upon thirty (30) days' notice of the City Engineer.

F. The Director of Public Works or designee is authorized to renew an existing permit in good standing for additional one (1) year periods provided either: (1) the applicant is not seeking any modification of the existing permit; or (2) any modification sought by either the applicant, the City Engineer or the Fire Marshal is deemed by the Director of Public Works to be a "minor modification of an existing permit", as defined in Section 14.14.010.

G. No permit obtained under this Chapter shall excuse the permittee's obligation to obtain and comply with any other permit or license required by the City or any other regulatory agency. (ORD-24-0002 § 14, 2024)

14.14.030 Public walkways occupancy permit—Application.

A person desiring to occupy a public walkway under this Chapter shall file an application for such authorization with the City. The applications shall be on a form provided by the City or accessible from the City's website and shall be signed by the permittee or his/her duly authorized agent. Any person signing the application as an agent shall furnish a written authorization executed by the permittee designating the person signing the permit as the permittee's duly authorized agent for

such purpose. Such authorization will remain in full force and effect until revoked by a written document signed by the permittee and filed with the City. Such application shall be accompanied by plans satisfactory to the City, which show in detail the proposed obstruction and method of securing it to public property including public infrastructure. (ORD-24-0002 § 14, 2024)

14.14.035 Fees, refunds and security deposits.

A. Every applicant for a public walkway occupancy permit under this Chapter shall pay to the City, before a permit is issued, an annual fee as adopted by the City Council by resolution and specified in the fee schedule.

B. Every applicant for a public walkway occupancy permit under this Chapter shall pay to the City a security deposit in an amount equivalent to the permit fee or in such additional amount as determined by the City Engineer. Such security deposit shall be applied to the cost of repairing any damage to public property attributable to the permittee's use of public property. Any balance shall be "rolled over" until the permit is terminated or canceled, at which time the security deposit shall be applied to the cost of restoring the public property to its prior condition and the remainder, if any, refunded to the permittee.

C. In the event that any permit issued pursuant to this Chapter is canceled because the permittee has violated a condition of his or her permit or any regulation or law, or because the permittee no longer owns or controls the property directly abutting the portion of the public walkway upon which the obstruction is located, no portion of a permit fee paid by him or her shall be refunded. If the permit is canceled by the City for any other reason, the unearned portion of the permit fee shall be refunded. (ORD-24-0002 § 14, 2024)

14.14.040 Public walkway occupancy standards.

The public walkway occupancy standards for location, design and operations for permitees under this Chapter shall comply with the City of Long Beach Sidewalk Dining and Parklets Handbook to be made available by the City. The Director of Public Works and/or City Engineer may require additional conditions for the location, design and operation of the public walkway occupancy. In addition, any public walkway occupancy subject to the terms of this Chapter shall conform to all of the following requirements:

A. The minimum width of the public walkway shall be not less than ten feet (10'), and such obstructions must permit at least five feet (5') of unobstructed area of public walkway, unless otherwise approved by the City Engineer on the basis of the considerations specified in this Chapter;

B. The obstruction shall not be located in a manner which interferes with the flow of pedestrian or other traffic, or which creates a potential threat to public safety, as determined by the City Engineer or Fire Marshal;

C. The obstruction shall be kept in a good state of repair and in a safe, sanitary and attractive condition;

D. Such obstruction shall be located in a manner which will not interfere with visibility, vehicular or pedestrian mobility or access to City or public utility facilities and will not compromise the safe use of any public walkway or other right-of-way. Permitted locations shall be determined by the City Engineer after consideration of the above and other relevant factors in relation to the proposed site. The City Engineer may, in his or her discretion, place additional conditions upon the issuance of such permit in order to ensure the protection of the public health and welfare and public property;

E. Minor modifications to these standards may be made by the Director of Public Works to an existing permit in good standing. (ORD-24-0002 § 14, 2024)

14.14.045 Public walkways dining permits and entertainment permits.

A. No person may occupy or cause to be occupied any portion of the public walkway for the purpose of providing dining or entertainment except as permitted by this Chapter or as elsewhere provided for in this Code.

B. Permits to occupy a portion of the public walkway for the purposes of dining or entertainment may contain restrictions for hours of the day or days of the week during which dining or entertainment may occur on the public walkway as determined or modified by the Director of Public Works in his or her discretion.

C. In addition to the other requirements set forth in this Chapter, permits to occupy a portion of the public walkway for the purpose of dining or entertainment shall conform to all of the following standards:

1. All dining or entertainment areas shall be defined by placement of sturdy barriers, not to exceed forty-eight inches (48") in height, as approved by the City Engineer.

2. All accessories to dining or entertainment uses such as plants or planter boxes, umbrellas, podiums, menu boards, musical equipment and heaters must be located inside the barrier.

D. All dining and entertainment which takes place on the public walkway and public right-of-way shall conform to the requirements of Chapter 8.80 of this Code regarding noise. Complaints regarding noise shall be logged by City staff and may be the basis for suspension, cancellation, or nonrenewal of a permit.

E. The permittee shall be responsible for cleaning the public walkway occupied by a dining or entertainment area.

F. Canopy structures, including overhead structures and windbreaks, are permitted, provided such structures are approved as part of a public walkway occupancy permit and are consistent with any approved master plan applicable to the installation and the design guidelines. Such structures must comply with all applicable laws and regulations, including, but not limited to, all fire, health, and building code regulations. Signage on or adjacent to a canopy structure shall be limited to business identification signs and shall be included in the calculation of total signage permitted pursuant to Chapter 21.44 of this Code.

G. Temporary banners, not exceeding the height of the barrier and attached to the barrier are permitted for a two (2) week period no more than four (4) times per year.

H. Menu boards must be portable, located within the dining area, and must not exceed five feet (5'), six inches (6") tall. Menu boards may be either a single pole pedestal of painted metal or a board attached to the inside of the barrier, parallel to the barrier.

I. A-frame signs, television monitors, and canopies are not permitted at any location beyond the permit area. (ORD-24-0002 § 14, 2024)

14.14.050 Reserved.

14.14.055 Entertainment on the public right-of-way.

A. No person shall perform or cause to be performed any entertainment activity on the public right-of-way without first obtaining a public walkways occupancy permit which permits such entertainment.

B. In the downtown area, nonamplified outdoor entertainment is permitted from ten o'clock (10:00) a.m. until twelve o'clock (12:00) midnight each day. Amplified outdoor entertainment is permitted from five o'clock (5:00) p.m. to twelve o'clock (12:00) midnight Monday through Friday, except if such day is a holiday. Amplified outdoor entertainment is permitted from ten o'clock (10:00) a.m. to twelve o'clock (12:00) midnight on Saturday, Sunday and holidays.

C. This Section shall not apply to any holder of a permit issued pursuant to Chapter 5.60 or Section 14.04.070 of this Code. Nothing in this Section shall operate to modify any requirement of Chapters 3.80 or 5.72 of this Code. (ORD-24-0002 § 14, 2024)

CHAPTER 14.15 PARKLETS

14.15.010 Definitions.

A. "Dining" means the consumption of food or beverage.

B. "Downtown area" means the area bounded northerly by the centerline of Tenth Street; westerly by the centerline of Maine Avenue north of First Street, and the centerline of Golden Avenue south of First Street and the centerline of Golden

Shore and its southerly prolongation; easterly by the centerline of Lime Avenue north of First Street and the centerline of Alamitos Avenue and its southerly prolongation south of First Street; southerly by the mean high tide line of the Pacific Ocean and its prolongation across the entrance to Pacific Terrace Harbor and Queens Way Landing boat basin.

C. "Existing permit" means a permit that has been issued by the City through its Department of Public Works, or the City Council for uses other than dining, entertainment, seating, planting, landscaping, lighting, shade, bicycle parking and/or artwork.

D. "Existing permit in good standing" means a permit that has been issued by the City and is compliant with all laws and regulations, including the terms and conditions attached to that permit. "Existing permit in good standing" does not include a permit the term of which has expired prior to the submission of a completed application for renewal, including all required documentation.

E. "Minor modification of an existing permit" means a reconfiguration of the area occupied or a change of equipment or fixtures within the permit area with no change to the total square footage occupied, unless the Director of Public Works deems such change to be negligible.

F. "Obstruction" means any temporary or permanent structure or stationary object, including, but not limited to, signs, displays, barriers, furniture, plants or plant containers, musical equipment, or merchandise placed on a public walkway or other right-of-way.

G. "Parklet" or "sidewalk extension parklet" means a small area open to public use, utilizing one or more on-street parking spaces and may include adjacent public walkways or other right-of-way, that may combine elements including dining, entertainment, seating, planting, landscaping, lighting, shade, bicycle parking and/or artwork.

H. "Permit" or "parklet permit" means a public walkways occupancy with sidewalk extension parklet permit issued by the City through its Department of Public Works.

I. "Portable" means items capable of being carried or moved about without the use of heavy moving equipment.

J. "Public property" means all City property, including "public walkways", as defined in this Chapter, and public rights-of-way, and the underlayment or foundation thereof, and public improvements thereon, including landscaping on or in such property.

K. "Public walkways" means all or any portion of territory within the City set apart and designated for the use of the public as a thoroughfare for travel, including alley and sidewalk which is generally considered the right-of-way between the curbline and the adjacent property line intended for use by pedestrians. (ORD-18-0031 § 2, 2018)

14.15.020 General requirements.

A. No person shall use or occupy the public walkway or other right-of-way with any obstruction for providing a parklet without first obtaining a written permit from the City through its Department of Public Works; provided, however, the permit shall be obtained from the City Council if (1) the proposed parklet will occupy more than ten percent (10%) of the available parking spaces within a two-block radius, (2) is opposed as described in Section 14.15.030 of this Chapter, or (3) will be for uses other than dining, entertainment, seating, planting, landscaping, lighting, shade, bicycle parking and/or artwork. Permits are not transferable. This Chapter shall not be applicable to any activity performed pursuant to and permitted by other Chapters of this Code.

B. Permits may only be issued to owners of property directly adjoining that portion of the public walkway and/or other right-of-way upon which the obstruction is to be located, or to lessees of such property with the consent of the property owner.

C. Permits for providing a parklet may only be issued for obstructions in areas located outside the coastal zone, unless a separate Local Costal Permit has been issued for such obstructions subject to the terms of this Chapter.

D. Permits for providing a parklet may only be issued if the vehicular speed limit of the adjoining street is no more than twenty-five miles per hour (25 mph), unless (1) traffic calming improvement(s) are constructed as required by the City Engineer or Traffic Engineer or (2) a permanent curb extension is constructed per City standards, which complies with all sidewalk dining requirements of Chapter 14.14 (Occupation of Public Walkways) and is otherwise approved by the Director of Public Works. If a permanent curb extension is constructed in accordance with this Section, then the noticing requirements of Section 14.15.030 of this Chapter shall apply.

E. The permit may be suspended or canceled at any time at the discretion of the Director of Public Works, in the event that it is determined that the obstruction would interfere with street improvement activities, construction activities, cleaning efforts or other similar activities. The permit may also be suspended at any time, if, in the discretion of the City Engineer or Fire Marshal, the obstruction threatens the public health or safety.

F. Permits may contain restrictions for hours of the day or days of the week during which the obstruction may occupy a public walkway and/or other right-of-way as determined by the Director of Public Works in his or her discretion.

G. Permits shall be issued for an initial period not to exceed one (1) year. Upon expiration, a new permit must be obtained on the basis of a new application, or a renewal permit must be obtained. Notwithstanding the above, such permits may be terminated by the City upon thirty (30) days' notice of the City Engineer.

H. The Director of Public Works or designee is authorized to renew an existing permit in good standing for additional one (1) year periods provided either: (1) the applicant is not seeking any modification of the existing permit; or (2) any modification sought by either the applicant, the City Engineer or the Fire Marshal is deemed by the Director of Public Works to be a "minor modification of an existing permit", as defined in Section 14.15.010.

I. No permit obtained under this Chapter shall excuse the permittee's obligation to obtain and comply with any other permit or license required by the City or any other regulatory agency. (ORD-23-0002 § 1, 2023; ORD-18-0031 § 2, 2018)

14.15.030 Parklet permit—Application filing and process.

A. A person desiring to occupy a public walkway and/or other right-of-way for providing a parklet shall file an application for such authorization with the City. The applications shall be on a form provided by the City or accessible from the City's website and shall be signed by the permittee or his/her duly authorized agent. Any person signing the application as an agent shall furnish a written authorization executed by the permittee designating the person signing the permit as the permittee's duly authorized agent for such purpose. Such authorization will remain in full force and effect until revoked by a written document signed by the permittee and filed with the City. Such application shall be accompanied by plans satisfactory to the City, which show in detail the proposed obstruction and method of securing it to public property including public infrastructure. The application shall be filed under penalty of perjury. False statements therein will constitute grounds for denial, suspension, or revocation as applicable. An incomplete application shall not be accepted for processing.

B. Change in contents. Any change in any information in the application which occurs after the application has been filed, and prior to City Council approval, if applicable, must be submitted in writing to the Director of Public Works within ten (10) calendar days after the change has occurred.

C. Review. On receipt of a complete application, the Director of Public Works shall refer it to all concerned City departments for review. Such departments shall file their comments and/or recommendations regarding the approval or denial of the permit with the Director of Public Works within thirty (30) days after the application is filed, except where circumstances beyond the control of the City justifiably delay such response.

D. Public Notice. After filing an application, a public notice shall be posted in such form as the Department of Public Works shall prescribe for at least thirty (30) days. Failure of any member of the public to see the notice shall not invalidate an action taken on the request for a parklet permit. The applicant shall pay all costs of such notice in the manner prescribed by the City's Director of Public Works.

The notice shall:

1. Be posted in a prominent place visible from the street frontage immediately adjacent to the proposed premises.

2. Include the contact information for the Department of Public Works printed near the bottom of the sign with detailed instructions on the method for submitting written support or opposition for the parklet permit application.

Written support or opposition shall be submitted in a form prescribed by the Department of Public Works. Written support or opposition shall be filed with the Department of Public Works prior to the issuance of a parklet permit.

E. Hearing.

1. Upon receipt of opposition as described in subsection (D) of section 14.15.030, the Director of Public Works shall transmit the application, together with the comments and recommendations of the City departments, to the City Council for hearing and shall notify the applicant and persons submitting written support or opposition for the parklet permit application of the date, time and place of the hearing which shall be held before the City Council on the first available hearing date.

2. Prior to scheduling the hearing, the Director of Public Works shall give the applicant notice of the recommendations of the City departments.

3. Notice of the time and place of the hearing shall also be given by posting notice at the property in a conspicuous location at the site of the proposed parklet. The applicant shall pay all costs of such notice in the manner prescribed by the City's Director of Public Works.

4. Where the Director of Public Works does not recommend approval of a permit, the Director of Public Works shall inform the applicant of the reason(s) for the denial in writing prior to the date the permit is scheduled for City Council consideration.

5. In issuing the permit, the City Council may impose conditions relating to the operation of the parklet. Conditions may relate to the location, design, and operations of the parklet. Conditions shall be listed on, or attached to, the permit. The City Council shall give the permittee an opportunity to review any proposed conditions and the City Council shall consider the input of the permittee prior to imposing those conditions.

6. Notwithstanding City Council approval of the application for the permit, the applicant shall not operate until a permit is actually issued by the Director of Public Works. Upon approval of the application, the Director of Public Works shall issue the permit, provided that the applicant has met all conditions imposed by any City department, has complied with all applicable laws, and has paid the applicable license tax and permit fees. The applicant shall have a maximum one hundred eighty (180) days after City Council approval to meet all applicable conditions. Failure to do so within that period shall render the City Council approval void, unless an extension of the compliance period is granted by the City Council before the compliance period has expired. (ORD-23-0002 § 2, 2023; ORD-18-0031 § 2, 2018)

14.15.035 Fees, refunds and security deposits.

A. Every applicant for a parklet permit under this Chapter shall pay to the City, before a permit is issued, an annual fee as adopted by the City Council by resolution and specified in the fee schedule.

B. Every applicant for a parklet permit under this Chapter shall pay to the City a security deposit in an amount equivalent to the permit fee or in such additional amount as determined by the City Engineer. Such security deposit shall be applied to the cost of repairing any damage to public property attributable to the permittee's use of public property. Any balance shall be "rolled over" until the permit is terminated or canceled, at which

time the security deposit shall be applied to the cost of restoring the public property to its prior condition and the remainder, if any, refunded to the permittee.

C. In the event that any permit issued pursuant to this Chapter is canceled because the permittee has violated a condition of his or her permit or any regulation or law, or because the permittee no longer owns or controls the property directly abutting the portion of the public walkway or other right-of-way upon which the obstruction is located, no portion of a permit fee paid by him or her shall be refunded. If the permit is canceled by the City for any other reason, the unearned portion of the permit fee shall be refunded. (ORD-18-0031 § 2, 2018)

14.15.040 Parklet standards.

The parklet standards for location, design and operations shall comply with the City of Long Beach Sidewalk Dining and Parklets Handbook to be made available by the City. The Director of Public Works and/or City Engineer may require additional conditions for the location, design and operation of the parklet. In addition, any parklet subject to the terms of this Chapter shall conform to all of the following requirements:

A. The minimum width of the public walkway directly adjoining the parklet shall be not less than five feet (5'), and such obstructions must permit at least five feet (5') of unobstructed area of public walkway, unless otherwise approved by the City Engineer on the basis of the considerations specified in this Chapter;

B. The obstruction shall not be located in a manner which interferes with the flow of pedestrian or other traffic, or which creates a potential threat to public safety, as determined by the City Engineer or Fire Marshal;

C. The obstruction shall be kept in a good state of repair and in a safe, sanitary and attractive condition;

D. Such obstruction shall be located in a manner which will not interfere with visibility, vehicular or pedestrian mobility or access to City or public utility facilities and will not compromise the safe use of any public walkway or other right-of-way. Permitted locations shall be determined by the City Engineer after consideration of the above and other relevant factors in relation to the proposed site. The City Engineer may, in his or her discretion, place additional conditions upon the issuance of such permit in order to ensure the protection of the public health and welfare and public property.

E. Minor modifications to these standards may be made by the Director of Public Works to an existing permit in good standing. (ORD-18-0031 § 2, 2018)

14.15.045 Parklet dining permits and entertainment permits.

A. No person may occupy or cause to be occupied any portion of the public walkway or other right-of-way for the purpose of providing dining or entertainment within a parklet except as permitted by this Chapter or as elsewhere provided for in this Code.

B. Permits to occupy a portion of the public walkway or other right-of-way for the purposes of dining or entertainment within a parklet may contain restrictions for hours of the day or days of the week during which dining or entertainment may occur within the parklet as determined or modified by the Director of Public Works in his or her discretion.

C. In addition to the other requirements set forth in this Chapter, permits to occupy a portion of the public walkway or other right-of-way for the purpose of dining or entertainment within a parklet shall conform to all of the following standards:

1. All dining or entertainment areas shall be defined by placement of sturdy barriers, not to exceed forty-eight inches (48") in height, as approved by the City Engineer.

2. All accessories to dining or entertainment uses such as plants or planter boxes, umbrellas, podiums, menu boards, musical equipment and heaters must be located inside the barrier.

D. All dining and entertainment which takes place on the public walkway or other right-of-way

within a parklet shall conform to the requirements of Chapter 8.80 of this Code regarding noise. Complaints regarding noise shall be logged by City staff and may be the basis for suspension, cancellation, or nonrenewal of a permit.

E. The permittee shall be responsible for cleaning the public walkway and other right-of-way occupied by a dining or entertainment area within a parklet, as well as any public property adjacent to the parklet.

F. Canopy structures, including overhead structures and windbreaks, are permitted, provided such structures are approved as part of a parklet permit and are consistent with any approved master plan applicable to the installation and the design guidelines. Such structures must comply with all applicable laws and regulations, including, but not limited to, all fire, health, and building code regulations. Signage on or adjacent to a canopy structure shall be limited to business identification signs and shall be included in the calculation of total signage permitted pursuant to Chapter 21.44 of this Code.

G. Temporary banners, not exceeding the height of the barrier and attached to the barrier facing the public sidewalk are permitted for a two (2) week period no more than four (4) times per year. Banners shall not be attached to the street facing sides of a parklet.

H. Menu boards must be portable, located within the dining area, and must not exceed five feet (5'), six inches (6") tall. Menu boards may be either a single pole pedestal of painted metal or a board attached to the inside of the barrier, parallel to the barrier.

I. A-frame signs, television monitors, and canopies are not permitted at any location beyond the permit area. (ORD-18-0031 § 2, 2018)

14.15.055 Entertainment on the public right-of-way.

A. No person shall perform or cause to be performed any entertainment activity on the public right-of-way without first obtaining a parklet permit which permits such entertainment.

B. In the downtown area, nonamplified outdoor entertainment is permitted from ten o'clock (10:00) a.m. until twelve o'clock (12:00) midnight each day. Amplified outdoor entertainment is permitted from five o'clock (5:00) p.m. to twelve o'clock (12:00) midnight Monday through Friday, except if such day is a holiday. Amplified outdoor entertainment is permitted from ten o'clock (10:00) a.m. to twelve o'clock (12:00) midnight on Saturday, Sunday and holidays.

C. This Section shall not apply to any holder of a permit issued pursuant to Chapter 5.60 or Section 14.04.070 of this Code. Nothing in this Section shall operate to modify any requirement of Chapters 3.80 or 5.72 of this Code. (ORD-18-0031 § 2, 2018)

14.15.060 Parklet permit—Failure to obtain.

A. Any person who occupies any public sidewalk or other right-of-way with any "obstruction," as defined herein, prior to obtaining a permit therefor, shall pay a fee double the fee calculated by the method prescribed in this Chapter.

B. The payment of the additional fee shall not relieve such person from the obligations imposed by this Chapter, or from penalties prescribed herein. (ORD-18-0031 § 2, 2018)

14.15.070 Indemnification of City.

A parklet permit issued under this Chapter shall provide that the permittee shall defend, indemnify, save and keep the City, its officers, agents and employees free and harmless from and against any and all claims for injury, damage, loss, liability, cost and expense of any name or nature whatsoever which the City, its officers, agents and employees may suffer, sustain, incur, or pay out as a result of any and all actions, suits, proceedings, claims and demands which may be brought, made or filed against the City, its officers, agents and employees, by reason of or arising out of, or in any manner connected with, any and all operations authorized or permitted by the permit. (ORD-18-0031 § 2, 2018)

14.15.080 Insurance.

A. Concurrent with the issuance of the permit, the permittee shall procure and maintain, at

its cost, during the term of the permit insurance as prescribed in regulations issued by the City Manager pursuant to Section 2.84.040.

B. Insurance required herein shall not be deemed to limit the permittee's liability under this permit.

C. Permittee shall keep the insurance in full force and effect during the term of any parklet permit issued pursuant to this Chapter. No permit granted pursuant to this Chapter shall be effective until the permittee has complied with all insurance requirements.

D. Any parklet permit so terminated may be reinstated only upon application therefor submitted and approved by the City and upon the payment of twenty dollars ($20.00) per day for every day on which no insurance was provided and also upon payment of all sums due and unpaid to the City under the provisions of this Chapter, as well as full indemnification during the uninsured period. (ORD-18-0031 § 2, 2018)

14.15.090 Default.

Upon the termination of the parklet permit by reason of the failure of the permittee to comply with the provisions of this Chapter, the City may notify the permittee in writing of the default and specify the time within which the default is to be remedied. If the permittee fails or refuses to remedy the default within the period of time specified, the right of permittee to use the public walkway or other right-of-way shall cease and the City shall have the right to remove the public walkway or other right-of-way obstruction as provided under this Chapter. The permittee shall reimburse the City for any expense incurred by the City in removing the obstruction. Should the permittee continue to use the public walkway or other right-of-way after the permit has been terminated and should the City file suit to restrain the use of the public walkway or other right-of-way by permittee, the permittee shall reimburse the City for its reasonable costs and expenses in connection therewith, including a reasonable attorney fee. (ORD-18-0031 § 2, 2018)

14.15.100 Revocation and nonrenewal.

A. The Director of Public Works or City Engineer may revoke, refuse to issue, or renew a parklet permit if such person has failed or refused:

1. To pay any fees for permits, security deposits or charges as established by the City Council;

2. To repair public improvements damaged as a result of the parklet occupancy of the public walkway or other right-of-way;

3. To comply with the terms of this Chapter or of a permit granted hereunder.

B. The Director of Public Works may also refuse to issue or renew a permit for providing a parklet in an area where such occupancy threatens the public health or safety, will be inconsistent with the public's use of the public walkway or other right-of-way, access needs or the use of any property located adjacent to the public walkway or other right-of-way. (ORD-23-0002 § 3, 2023; ORD-18-0031 § 2, 2018)

14.15.110 Appeal—City Council.

Except for minor modifications to an existing permit, any other determination or modification to a permit made by the Director of Public Works or City Engineer may be appealed to the City Council within ten (10) calendar days from the date of such determination or modification in the manner provided in this Section. Determinations or modifications to a permit made by the City Council shall be final.

A. The request for appeal shall be in writing, shall set forth the specific ground(s) on which it is based and shall be submitted to the Director of Public Works.

B. If the appeal is made by a permittee or any person other than the permittee, such appeal shall be accompanied by an appeal deposit in an amount determined by the City Council by resolution and specified in the fee schedule.

C. The City Council shall conduct a hearing on the appeal or refer the matter to a Hearing Officer, pursuant to Chapter 2.93 of this Code, within sixty (60) business days from the date the completed request for appeal was received by the Director of Public Works, except where good cause

exists to extend this period. The appellant shall be given at least ten (10) business days written notice of such hearing. The hearing and rules of evidence shall be conducted pursuant to Chapter 2.93 of this Code. The determination of the City Council on the appeal shall be final. (ORD-23-0002 § 4, 2023; ORD-18-0031 § 2, 2018)

CHAPTER 14.16 BENCHES

14.16.010 Definitions.

For the purposes of this Chapter, certain terms, phrases and words, shall be construed as set out in this Section:

A. "Bench" means a seat located upon public property along any public street for the accommodation of passersby or persons awaiting transportation.

B. "City" means the City of Long Beach.

C. "Street" means any public thoroughfare or way, including the curb, sidewalk, parkway, and any other public property. (Ord. C-5691 § 2 (part), 1981; prior code § 7531)

14.16.020 Compliance required.

No person shall install or maintain any bench on the streets and ways of the City without full compliance with the provisions of this Chapter and the rules and regulations of the City Council governing same. (Ord. C-5691 § 2 (part), 1981: prior code § 7531.1)

14.16.030 Permit required.

No person shall install or maintain any bench on any street without a permit therefor from the City Council. The City Manager or his designee shall have the authority to authorize and issue the permits, and to revoke any such issued permit in the event of any violation of any of the provisions of this Chapter or any regulation of the City Council made pursuant thereto. Any such revocation shall be subject to ratification of the City Council at its next regular meeting. (Ord. C-5691 § 2 (part), 1981; prior code § 7531.2)

14.16.050 Removal procedure.

A. Any bench on public property not permitted by this Chapter shall be removed by the owner of the bench within ten (10) days after receipt of written notice sent by registered or certified mail from the City Manager or his designee stating that the bench is not permitted and must be removed.

1. The owner of the bench, within ten (10) days of the receipt of the notice of removal, shall remove the bench or shall deliver an appeal in writing to the City Manager or his designee stating why the owner believes the bench should not be removed; and the matter then be set for hearing before the City Council at its next meeting, but not sooner than ten (10) days after receipt of the appeal.

2. The City Council shall hear any such appeal and shall make a determination that the bench should be removed, or not, and any action of the

City Council shall be final. Should the City Council find that the bench should be removed, the owner shall remove the bench within ten (10) days after the ruling of the City Council. Failure of the appellant or a duly appointed representative to appear at the hearing or to give good reason why the hearing should be postponed shall be sufficient grounds for the City Council to find that the bench shall be removed, as demanded by the City Manager or his designee.

3. If the owner of a bench fails to remove the bench within ten (10) days after receipt of due notice of removal, or order of the City Council, the City Manager or his designee shall cause the bench to be removed and impounded. The owner of the bench shall be notified that the bench has been impounded.

4. Within sixty (60) days of the impoundment of a bench, the owner of the bench may recover the bench by paying to the City an impoundment fee and storage fee as determined by the City Council by resolution for each thirty (30) days, or fraction thereof, the bench has been impounded. The fees shall apply to each bench removed, impounded, and stored.

B. If the owner of a bench cannot be ascertained, then written notice shall be attached to any nonpermitted bench, stating the bench is not permitted and must be removed. No person shall remove the notice while the bench is placed on City streets without a permit as required by Section 14.16.030.

1. Within ten (10) days of the posting of the notice, the owner shall either remove the bench or appeal to the City Council in the manner set forth in Subsection 14.16.050.A.1 of this Section. In the event the owner does not so remove the bench, or appeal to the City Council, the City Manager or his designee shall cause the bench to be removed and impounded.

2. Any bench so impounded may be recovered by the owner within sixty (60) days after the impoundment thereof by paying the office of the City Council the fees set forth in Subsection 14.16.050.A.4 of this Section.

C. Within sixty (60) days after the impoundment of any bench, the owner may appeal to the City Council for hearing. The City Council, after hearing and showing of good cause therefor, may allow the recovery of any impounded bench without payment of the impoundment fees or payment of reduced impoundment fees and in accordance with such other conditions as the City Council may impose.

D. In the event a bench has been stored sixty (60) days and no appeal has been made to the City Council, or the owner of the bench has not complied with the order of the City Council following the appeal, the bench shall become the property of the City and the City may use or dispose of the bench in a manner deemed appropriate.

E. Any order by the City Council in regard to the removal of any bench shall be final. (ORD-10-0014, § 20, 2010; Ord. C 5691 § 2 (part), 1981; prior code § 7531.4)

14.16.060 Rules and regulations.

The City Council shall have authority to establish rules and regulations governing the size, weight, type of construction, placement, identification markings, maintenance standards of benches, and such other rules and regulations as necessary to carry out the provisions of this Chapter. (Ord. C 5691 § 2 (part), 1981; prior code § 7531.5)

14.16.070 Enforcement.

The City Council shall enforce the provisions of this Chapter and shall have complete authority over the installation and maintenance of benches, subject to the provisions of this Chapter. (Ord. C 5691 § 2 (part), 1981; prior code § 7531.6)

14.16.080 Insurance.

At all times permittee shall defend, indemnify, and hold harmless the City, its officials, employees and agents from and against all claims, demands, damage, causes of action, proceedings, loss, liability, costs and expenses (including reasonable Attorney fees) of any kind (collectively in this Section, "claim") alleging injury to or death of persons

or damage to property and that such injury, death or damage arises from or is attributable to or caused by the installation and maintenance of any bench or benches authorized pursuant to this Chapter. Permittee shall procure and maintain, at its sole cost, during the term of the permit and any renewals thereof insurance as prescribed in regulations issued by the City Manager pursuant to Section 2.84.040. (Ord. C 7934 § 19, 2004: Ord. C 7214 § 1, 1994: Ord. C 5691 § 2 (part), 1981: prior code § 7531.7)

14.16.090 Standards for issuance of bench permits.

Privately owned benches placed within the public right-of-way intended for the use of the general public shall adhere to the standards set forth in this Section. This Section shall not apply to benches placed by public transit agencies intended primarily for the use of bus transit passengers.

A. Bench permits shall specify location of benches on the public walkways. Benches shall be located in a manner which will not interfere with vehicle and pedestrian visibility, pedestrian use of the sidewalk, the use of any building exits, or access to public utility, fire protection equipment, or other City facilities.

B. Bench permits shall only be issued to owners and/or lessees of the property directly abutting the portion of the public street upon which the bench is proposed to be placed. Approved benches shall be placed immediately adjacent to the privately owned property, or as otherwise approved by the Director of Public Works.

C. The minimum clear distance from any point on the bench to the vertical plane of the curb face, measured parallel to the sidewalk, shall be seven feet (7') Where other obstructions exist in the vicinity of the bench area, a minimum clear horizontal distance of seven feet (7') shall be maintained between the bench and any obstructions.

D. Benches may not be located within five feet (5') of an intersecting street (measured to the prolongation of the near property line of the intersecting street) or within five feet (5') of a driveway or alley (measured to the nearest portion of an apron type driveway or to the beginning curb return of the near curb of the driveway).

E. Local business associations shall be encouraged to establish a uniform bench style for benches located in their association areas. Bench design must be aesthetically pleasing and consistent with neighborhood character.

F. Benches permitted under this Chapter shall be well constructed of high quality materials and kept in a sanitary condition and good state of repair. Benches may not be upholstered or cushioned. Benches shall have a maximum back height of three feet (3'), a maximum length of six feet (6'), and a maximum weight of two hundred fifty (250) pounds, unless otherwise approved by the Director of Public Works, where such variation would be reasonable and appropriate in the specific circumstances and would not compromise public health, safety or welfare.

G. Bench proposals shall be submitted with a photograph or manufacturer's drawing of the bench and bench specifications including dimensions (length, depth, height), weight, and manufacturer's name and model number. Prior to the issuance of a permit and the installation of the bench, the proposed bench shall be reviewed as to sufficiency for public use by the Department of Public Works.

H. No signage, advertising, or business logos shall be readily visible to passersby. Bench owners shall identify their benches with their name and mailing address on the back or the underside of the bench. Use of benches by the general public may not be limited or prohibited.

I. Bench permits may be suspended or revoked by the City in the interest of the public safety and convenience, including, but not limited to, such circumstances as sidewalk cleaning or construction activities, installation of conflicting utility or streetscape facilities, and complaints regarding obstruction and/or interference with public use.

J. When a bench is removed from the public right-of-way, by order of the City, or otherwise, the surface of the sidewalk shall be restored to its original condition or better, to the satisfaction of

the Director of Public Works. (Ord. C-7214 § 2, 1994)

CHAPTER 14.20 NEWSRACKS

14.20.010 Definitions.

A. For the purposes of this Chapter, the terms "exhibit", "harmful matter", "knowingly", "matter", "minor", and "person" shall each have that definition ascribed to it in California Penal Code Section 313, as it may be amended from time to time.

B. "Newsrack" means any self-service box or container installed or located in the public right-of-way and intended to be used for the distribution of printed material, with or without charge. A newsrack may be a single unit or a publication container which rests on or is affixed to the uppermost surface of a newsrack base.

C. "Newsrack base" means a pedestal or other device on which a publication container rests or is affixed.

D. "Parkway" means that area between the sidewalks and the curb of any street, and where there is no sidewalk, that area between the edge of the roadway and the property line adjacent thereto. Parkway also includes any area within a roadway which is not open to vehicular travel.

E. "Pilot program", for the purposes of this Chapter, means a temporary program in a defined area which is subject to periodic review by the City Council.

F. "Roadway" means that portion of a street improved, designed or ordinarily used for vehicular travel.

G. "Sidewalk" means any surface provided for the exclusive use of pedestrians.

H. "Street" means all that area dedicated to public use purposes and includes, but is not limited to, roadways, parkways, alleys and sidewalks.

I. "Standard pilot program newsrack" means a newsrack which meets the standards set for a pilot program. (Ord. C-7929 § 1, 2004)

14.20.020 Roadway obstruction prohibited.

No person shall install, use or maintain any newsrack or other structure which projects onto, into or over any part of the roadway of any public street, or which rests, wholly or in part, upon, along or over any portion of the roadway of any public street. (Ord. C-7929 § 1, 2004)

14.20.030 Obstruction of sidewalk use prohibited.

No person shall install, use or maintain any newsrack which in whole or in part rests upon, in or over any public sidewalk or parkway, when such installation, use or maintenance endangers the safety of persons or property, or when the site or location is used for public utility purposes, public transportation purposes or other governmental use, or when the newsrack interferes with or impedes the flow of pedestrian or vehicular traffic, including any legally parked or stopped vehicles, the ingress into or egress from any residence or place of business, or the use of poles, posts, traffic signs or signals, hydrants, mailboxes, or other objects permitted at or near the location, or when the newsrack interferes with the cleaning of any sidewalk by the use of mechanical sidewalk cleaning machinery. (Ord. C-7929 § 1, 2004)

14.20.040 Placement regulations.

Any newsrack which in whole or in part rests upon, in or over any public street, shall comply with following standards:

A. No newsrack shall exceed five feet (5') in height, thirty inches (30") in width, or two feet (2') in thickness.

B. Newsracks shall only be placed near a curb or adjacent to the wall of a building. Newsracks placed near the curb shall be placed no less than eighteen inches (18"), nor more than twenty-four inches (24") from the edge of the curb. Newsracks placed adjacent to the wall of a building shall be placed parallel to the wall and not more than six inches (6") from the wall. No newsracks shall be placed or maintained on the sidewalk or parkway opposite a newsstand or another newsrack.

C. No newsrack shall be chained, bolted or otherwise attached to any property not owned by the owner of the newsrack or to any permanently

fixed object, except with the written permission of the owner of such property or permanently fixed object.

D. Newsracks may be chained or otherwise attached to one another; however, no more than three (3) newsracks may be joined together in this manner, and a space of no less than eighteen inches (18") shall separate each group of three (3) newsracks so attached. For the purposes of determining how many newsracks may be attached to one another or placed adjacent to one another, the following shall apply:

1. Each unit consisting of one (1) publication container and one (1) newsrack base, or incorporating both functions in one (1) unit, shall be considered one (1) newsrack.

2. Two (2) publication containers stacked vertically and sharing one (1) newsrack base shall be considered one (1) newsrack.

3. If two (2) or more publication containers are joined horizontally, each publication container shall be considered to be one (1) newsrack.

E. No newsrack or group of attached newsracks allowed under Subsection 14.20.040.D shall weigh, in the aggregate, in excess of one hundred twenty-five (125) pounds when empty.

F. Notwithstanding the provisions of Section 14.20.020, no newsrack shall be placed, installed, used or maintained:

1. Within three feet (3') of any marked crosswalk;

2. Within fifteen feet (15') of the curb return of any unmarked crosswalk;

3. Within three feet (3') of any fire hydrant, fire call box, police call box or other emergency facility;

4. Within three feet (3') ahead of, and fifteen feet (15') to the rear of any sign marking a designated bus stop;

5. Within three feet (3') of any bus bench;

6. At any location whereby the clear space for the passageway of pedestrians is reduced to less than six feet (6');

7. Within one foot (1') of any area improved with lawn, flowers, shrubs or trees or within one foot (1') of any display window of any building abutting the sidewalk or parkway or in such manner as to impede or interfere with the reasonable use of such window for display purposes.

G. No newsrack shall be used for advertising signs or publicity purposes other than that dealing with the display, sale or purchase of the newspaper or news periodical sold therein.

H. Each newsrack shall be maintained in a clean, neat and attractive condition and in good repair at all times. Cleaning and maintenance shall be performed in a manner which complies with all applicable laws and regulations.

I. No person shall knowingly cause any publication offered for sale from a newsrack placed or maintained on a public street to be displayed or exhibited in a manner which exposes to public view by minors any harmful matter, as defined in Penal Code Section 313, as it may be amended from time to time. (Ord. C-7929 § 1, 2004)

14.20.050 Identification required.

A. Every person or other entity which places or maintains a newsrack on the streets of the City shall have his or its name, address and telephone number affixed thereto in a place where such information may be easily seen.

B. Every person or other entity which places or maintains one (1) or more newsracks on the streets of the City shall notify the City of Long Beach Department of Public Works prior to the initial placement, or within thirty (30) days of the effective date of this ordinance as amended, providing the name of the responsible party, the name of the publication(s) to be placed, and an email address for contacting the responsible party. This email address shall only be used for notifications of required newsrack maintenance instances and changes to the Long Beach City Municipal Code regarding newsracks. Whenever names of publications are changed or added to, the City shall be notified. The City shall be notified of any change to an email point of contact within five (5) business days of such change. (ORD-11-0014, § 1, 2011; Ord. C-7929 § 1, 2004)

14.20.060 Violation—Removal.

Any newsrack installed, used or maintained in violation of the provisions of this Chapter may be

removed and stored in any convenient place by the City Manager or a City officer or employee designated by him, but only upon notice first served on the owner by attaching to the newsrack a written citation reciting the violation. Notice of the violation shall also be transmitted by electronic mail to the electronic mail address currently on file with the Director of Public Works in compliance with Section 14.20.050. If the owner fails to cure the violation within five (5) business days of service of violation, or if the owner fails to request a hearing as provided in Section 14.20.080, as to whether the newsrack is in violation of this Chapter, the City Manager or his designee shall remove and store the newsrack in a convenient place. Upon failure of the owner to claim the newsrack and pay the expenses of removal and storage within thirty (30) days after such removal, the newsrack shall be deemed to be unclaimed property in possession of the Police Department and may be disposed of pursuant to the provisions of Section 2.78.020. Any newsrack found in such condition to present a hazard to public safety will be removed by the City Manager or his designee immediately. (ORD-11-0014, § 2, 2011; Ord. C-7929 § 1, 2004)

14.20.070 Violation—Restoration to compliance.

In the case of violations of the section relative to restrictions upon attachments of newsracks to property other than that owned by the owner of the newsrack, to fixed objects or each other, and upon location of newsracks, any public body or officer may, as an alternative to removal under Section 14.20.060, remove the attachment and/or move the rack or racks in order to restore them to a legal condition. (Ord. C-7929 § 1, 2004)

14.20.080 Appeal—Director of Public Works.

Any owner of a newsrack alleged to be in violation of this Chapter may, within five (5) business days of service of notice of violation as provided in Section 14.20.060, request in writing a hearing before the Director of Public Works of the City or his designee for the purpose of determining whether the newsrack of the owner is in fact in violation of this Chapter. The written request for hearing shall be filed with the Director of Public Works within the time provided and the hearing thereon shall be conducted not less than five (5), nor more than ten (10) days following the date of filing the request for hearing. The Director of Public Works or his designee shall notify the owner by mail of the time and place of the hearing. At the conclusion of the hearing, or within five (5) days thereafter, the Director of Public Works or his designee shall find and determine from the facts established at the hearing whether or not the newsrack is in fact in violation of this Chapter and is to be impounded. The Director of Public Works or his designee shall notify the owner of his or her decision and order by mail if the decision is not made at the conclusion of the hearing and in the presence of the participants to the hearing. (ORD-11-0014, § 3, 2011; Ord. C-7929 § 1, 2004)

14.20.090 Appeal—City Council.

Any owner may, within ten (10) days after the mailing of the notice of decision and order of the Director of Public Works, appeal the decision and order to the City Council in the manner provided in this Section.

A. The appeal shall be in writing, shall state the legal and factual basis upon which the appeal is to be based and shall be filed with the Director of Public Works. The Director of Public Works shall forward the appeal, together with a copy of the decision and order, to the City Clerk.

B. Upon receipt of the appeal and decision and order, the City Clerk shall place the matter upon the agenda for the next meeting of the City Council. Upon the filing of the appeal before the City Council, the City Council shall fix a time and place for the hearing on appeal. Such time shall be fixed for a day not later than thirty (30) days after the date of filing the appeal. A notice of the time and place of the hearing on appeal shall be sent to the owner or his or her designated agent.

C. At the hearing on appeal, the owner shall be given an opportunity to present competent, relevant and material evidence relating to the question as to whether or not the decision and order of

the Director of Public Works should be affirmed or reversed. The hearing on appeal shall be conducted in accordance with the provisions of Chapter 2.93.

D. The decision of the City Council may be rendered orally or in writing at the conclusion of the hearing or at any time thereafter, and the decision shall be final. In the event the decision is rendered at the hearing, no further notice thereof needs to be given to the owner or any other person. If the decision is not rendered at the hearing, written notice of the decision shall be mailed to the owner or his or her designated agent. (Ord. C-7929 § 1, 2004)

14.20.100 Violation—Summary removal.

Any newsrack installed, used or maintained in violation of the provisions of Sections 14.20.080 and 14.20.090 shall be summarily removed and stored in any convenient place by the City Manager or a City officer or employee designated by him or her. Upon failure of the owner to claim the newsrack and pay the expenses of removal and storage within thirty (30) days after removal, the newsrack shall be deemed to be unclaimed property in possession of the Police Department and may be disposed of pursuant to provisions of Section 2.78.020. (Ord. C-7929 § 1, 2004)

14.20.200 Belmont Shore pilot program area—Additional requirements.

A. The Belmont Shore pilot program area consists of Second Street between the centerline of Livingston Avenue and the easterly line of Bay Shore Avenue, including the intersecting cross streets between those westerly and easterly limits, from Second Street to the nearest intersecting alley or street line, both northerly and southerly of Second Street.

B. In addition to the requirements set forth in Sections 14.20.010 through 14.20.100 above, the following additional requirements shall apply in the Belmont Shore pilot program area:

1. The standard pilot program newsrack shall have a flat top surface and shall not exceed forty-eight inches (48") in height, twenty-five inches (25") in depth (perpendicular to the curbline) or twenty-five inches (25") in width (parallel to the curbline), either the publication container and newsrack base manufactured by the K-Jack Engineering Company, model series 50, or an approved equal publication container and newsrack base, as determined by the City Engineer. The standard pilot program project newsrack shall be painted a color equivalent to K-Jack Engineering Company's "valley blue" (stock color number 3312) Nonconforming colors shall be limited to the display areas provided on the front and back of the standard pilot program newsrack.

2. The City Engineer shall maintain and make available for inspection a list of newsracks determined to be approved equal products of the standard pilot program newsrack.

3. Newsracks within the pilot program area which do not conform to the requirements of this Section at any time shall be subject to the enforcement provisions of this Chapter.

4. Notwithstanding other references in this Code to the prohibition of the fastening of equipment or structures to the public right-of-way, newsracks within the Belmont Shore pilot program area must be bolted to the sidewalk pursuant to the requirements and under the direction of the City Engineer.

5. In the event of a conflict between the requirements of this Section and the general requirements for newsracks contained elsewhere in this Chapter, this Section shall control in the Belmont Shore pilot program area.

C. This Section shall remain in effect until revoked by City Council. (ORD-13-0001, § 1, 2013; ORD-08-0009 § 1, 2008; ORD-07-0028 § 1, 2007; ORD-06-0023 § 1, 2006; ORD-05-0017 § 1, 2005; Ord. C-7929 § 1, 2004)

14.20.210 Downtown pilot program area.

A. Both sides of Ocean Boulevard and the area to the north up to and including both sides of Tenth Street, lying on either side and/or east of Golden Avenue and lying on either side of or west of Alamitos Avenue, except for that area north of Fourth Street and west of Pacific Avenue AND

except for that area north of Fourth Street and east of Long Beach Boulevard. Note that both sides of Fourth Street, Pacific Avenue and Long Beach Boulevard within the above-defined limits are included within the downtown pilot program area.

B. In addition to the requirements set forth in Sections 14.20.010 through 14.20.100 of this Chapter, the following additional requirements shall apply in the downtown pilot program area:

1. All newsracks within the downtown pilot program area shall be either the K-Jack 100 flat top model or an approved equal. The total height of the newsrack shall not exceed forty-eight inches (48") The City Engineer in his or her sole authority shall determine what constitutes an approved equal of the items specified in this Section.

2. Plastic newsracks are prohibited.

3. The City Engineer shall maintain and make available for inspection a list of newsracks determined to be approved equal products of the standard pilot program newsrack.

4. Notwithstanding other provisions in this Section to the minimum spacing required between newsracks, in the downtown pilot program area, the minimum spacing between two (2) single newsracks, between a single newsrack and a group of newsracks, or between two (2) groups of newsracks shall be five feet (5').

5. Newsracks within the pilot program area which do not conform to the requirements of this Section shall be subject to the enforcement provisions of this Chapter.

6. In the event of a conflict between the requirements of this Section and the general requirements for newsracks contained elsewhere in this Chapter, this Section shall control the downtown pilot program area.

C. This Section shall remain in effect until revoked by the City Council. (ORD-11-0014, § 4, 2011; ORD-06-0047 § 1, 2006; ORD-05-0016 § 1, 2005: Ord. C-7929 § 1, 2004)

14.20.220 Naples Island pilot program area—Additional requirements.

A. The Naples Island pilot program area consists of both sides of Second Street from the Toledo to Appian Way.

B. In addition to the requirements set forth in Sections 14.20.010 through 14.20.100 of this Chapter, the following additional requirements shall apply in the Naples Island pilot program area:

1. All newsracks within the Naples Island pilot program area:

a. Shall be K-Jack flat top model or an approved equal, and shall be mounted on a single pedestal;

b. Shall be limited to no more than two (2) groups of three (3), within forty-five (45) linear feet of the sidewalk; and

c. Each group of newsracks shall be separated by at least five feet (5').

2. The City Engineer shall maintain and make available for inspection a list of newsracks determined to be approved equal products of the standard pilot program newsrack.

3. Newsracks within the pilot program area which do not conform to the requirements of this Section at any time shall be subject to the enforcement provisions of this Chapter.

4. Notwithstanding other references in this Code to the prohibition of the fastening of equipment or structures to the public right-of-way, newsracks within the Naples Island pilot program area must be bolted to the sidewalk pursuant to the requirements and under the direction of the City Engineer. Where the sidewalk is composed of shallow pavers on a sand base, newsracks shall not be bolted, but shall be placed on a self-supporting platform, all to the satisfaction of the City Engineer.

5. In the event of a conflict between the requirements of this Section and the general requirements for newsracks contained elsewhere in this Chapter, this Section shall control the Naples Island pilot program area.

C. This Section shall remain in effect until revoked by City Council. (ORD-13-0001, § 2, 2013; ORD-08-0037, § 1, 2008)

14.20.300 Queens Way Bay newsrack program area—Additional requirements.

A. The Queens Way Bay newsrack program area consists of that area lying south of the south

curb face of Shoreline Drive, east of the east curb face of Queens Way, west of the westerly boundary of the Shoreline Village lease area, and north of the water's edge, as shown on a map on file in the office of the City Engineer.

B. The following requirements shall apply in the Queens Way Bay newsrack program area:

1. The standard pilot program newsrack shall have a flat top surface and shall not exceed forty-eight inches (48") in height, twenty-five inches (25") in depth (perpendicular to the curb line) or twenty-five inches (25") in width (parallel to the curb line), either the publication container and newsrack base manufactured by the K-Jack Engineering Company, model series 50, or an approved equal publication container and newsrack base, as determined by the City Engineer. The standard pilot program project newsrack shall be painted a color equivalent to K-Jack Engineering Company's "valley blue" (stock color number 3312). Nonconforming colors shall be limited to the display areas provided on the front and back of the standard pilot program newsrack.

2. The City Engineer shall maintain and make available for inspection a list of newsracks determined to be approved equal products of the standard pilot program newsrack.

3. Notwithstanding other references in this Code to the prohibition of the fastening of equipment or structures to the public right-of-way, newsracks within the Queens Way Bay newsrack program area must be bolted to the sidewalk pursuant to the requirements and under the direction of the City Engineer.

4. In the event of a conflict between the requirements of this Section and the general requirements for newsracks contained elsewhere in this Chapter, this Section shall control in the Queens Way Bay newsrack program area.

5. In addition to complying with the placement regulations of Section 14.20.040, newsracks within the Queens Way Bay newsrack program area shall be limited to the following locations:

a. On the sidewalk along the south side of Shoreline Drive, east of its intersection with Pine Avenue Circle, no less than sixty-five feet (65'), nor more than eighty-three feet (83') east of the easterly curb of Pine Avenue and its prolongation northerly, measured parallel to the Shoreline Drive curb, and no less than three feet (3'), nor more than five feet (5') from the edge of that curb.

b. On the sidewalk of the Pine Avenue Circle, easterly of the northerly prolongation of the east side of the boardwalk, and southwesterly of the nearest streetlight standard, no less than two feet (2'), nor more than four feet (4') from the edge of that curb.

c. On the westerly sidewalk of the Pine Avenue Circle, northerly of the easterly prolongation of the most southerly line of parcel 3 of parcel map 25804, and southerly of the nearest streetlight standard to the north, no less than two feet (2'), nor more than four feet (4') from the edge of that curb.

d. On the public sidewalk at the southwesterly intersection of Shoreline Drive and Pine Circle, easterly of the northwest edge of paving and northerly of the east-west edge of paving, at that intersection.

e. East of the edge of paving of that brick paved area south of the west end of the east branch of Aquarium Way (east of the circle fountain), and north of floating dock 2, lying between the two (2), two-walled utility enclosures, no more than eighteen feet (18') distant from, nor less than eight feet (8') distant from, the most westerly point of the east utility enclosure, and no more than four feet (4') distant from the edge of paving.

f. On the sidewalk along the north side of the west branch of Aquarium Way (west of the circle fountain), westerly of the crosswalk leading from the southeast or main entrance to the Aquarium Circle parking garage, no more than fifteen feet (15') distant from the westerly line of that crosswalk, and no less than two feet (2'), nor more than four feet (4') from the edge of the curb.

g. On the sidewalk along the south side of the west branch of Aquarium Way (west of the circle fountain), westerly of the crosswalk leading from the southeast or main entrance to the Aquarium Circle parking garage, no more than twelve feet

(12') distant from the westerly line of that crosswalk, and no less than two feet (2'), nor more than four feet (4') from the edge of the curb.

h. Northerly of the northeasterly wall of the Long Beach Anglers building at Pierpoint Landing, such wall being concave northeasterly, and easterly of the main entrance, no more than three feet (3') from the surface of that northeasterly wall adjacent to the entrance.

i. At the circular stair terminus of the Promenade Bridge south of Shoreline Drive, adjacent to the northwesterly surface of the most southwesterly outer radial wall segment of the terminus, such wall segment bearing approximately south forty-five (45) degrees west of the terminus center, no more than three feet (3') from the northwesterly surface.

j. At the circular stair terminus of the Promenade Bridge south of Shoreline Drive, adjacent to the northeasterly surface of the most southeasterly outer radial wall segment of the terminus, such wall segment bearing approximately south forty-five (45) degrees east of the terminus center, no more than three feet (3') from the northeasterly surface. (Ord. C-7929 § 1, 2004)

CHAPTER 14.24 RAILROADS OBSTRUCTING STREETS

14.24.010 Blocking crossings prohibited.

No person shall allow any locomotive engine, railroad train, electric train, car or cars or other vehicle operated by steam or electricity on railroad tracks to stand on any street crossing for a greater length of time than five (5) minutes, or to remain standing on any track, sidewalk or switch located on or along any public street or other public place for a greater length of time than twenty (20) minutes; provided, however, that freight cars may be permitted to stand on sidetracks and switches for the purpose of unloading building materials and materials for street improvement upon obtaining a written permit from the Director of Public Service so to do; and provided further, that freight cars may be permitted to stand on sidetracks and switches in front of and immediately contiguous to freight depots then being used as such and on commercial sidetracks constructed for, and in use by, business enterprises. (Prior code § 7534.3)

14.24.020 Offensive substance discharge prohibited.

No person shall load, unload, discharge or deposit upon or along the line of any railroad or along any public street or other public place any manure, offal or other offensive or nauseous substance or allow any car or wagon having therein or thereupon any such substances to remain or stand upon or along any railroad or upon or along any public street or other public place. (Prior code § 7534.4)

14.24.030 Discharging steam on streets prohibited.

No person shall expel, discharge or blow off any steam or other mist forming vapor from any locomotive engine into, upon, along or across any public street. (Prior code § 7534.5)

14.24.040 Unnecessary noise.

No person shall allow the ringing of engine bells and the blowing of engine whistles when not in motion and unnecessarily. (Prior code § 7534.6)

14.24.050 Freight car switching hours.

No person shall switch any freight car or freight cars except between the hours of 7:00 a.m. and 11:00 a.m. of any day; provided, that the provisions of this Section shall not apply to the switching of freight cars in any industrial district. (Prior code § 7534.7)

14.24.060 Crossing signal resolution—Authorized.

Whenever, in the opinion of the Council, the public safety or welfare may require the stationing of flagmen or the placing of automatic warning signals or signal bells in, at or upon any street or streets crossed by the tracks of any railroad company or companies, the Council may adopt a resolution of necessity finding and determining that

the public safety and welfare so require the stationing of such flagmen or the placing of such automatic warning signals or signal bells designating the streets crossed by the tracks of the railroad company or companies and in, at or which the flagmen are to be stationed or the automatic warning signals or signal bells are to be placed, naming the railroad company or companies the tracks of which cross the streets mentioned, describing generally the number, type and location of automatic warning signals or signal bells to be placed or the number of flagmen to be stationed at each such crossing and the hours during which the flagmen shall be maintained, and fixing a day and hour not less than fifteen (15) days from the date of the adoption of the resolution at which the railroad company or companies may appear before the Council and show cause why the Council should not order the stationing of the flagmen or the placing of the automatic warning signals or signal bells. Any number of streets and any number of railroad companies may be included in the same resolution. (Prior code § 7534.8)

14.24.070 Crossing signal resolution—Copy service.

A certified copy of the resolution of necessity shall be served upon each of the railroad companies named therein in the same manner as the service of a summons, at least five (5) days prior to the date set therein at which the railroad company or companies may appear and show cause. (Prior code § 7534.9)

14.24.080 Crossing signal resolution—Appeal hearing.

At the day and hour mentioned in the resolution of necessity, the railroad company or companies may appear before the Council and show cause, if they have any, why the Council should not order the stationing of flagmen or the placing of automatic warning signals or signal bells as described in the resolution of necessity. At such time the Council shall hear the railroad company or companies and all persons interested therein. (Prior code § 7534.10)

14.24.090 Crossing signal resolution—Compliance—Order.

If upon the hearing provided for in the resolution of necessity, or at any time to which the same may be continued, the Council finds and determines, by order entered upon its minutes, that the cause shown by the railroad company or companies, or any persons interested therein, if any, is not sufficient and that the stationing of the flagmen or the placing of the automatic warning signals or signal bells or any part thereof should be ordered, then, at any time within ninety (90) days thereafter, the Council may adopt a resolution ordering the railroad company or companies named in the resolution of necessity to station flagmen or place automatic warning signals or signal bells or any part thereof at the street crossings in accordance with the requirements of the resolution of necessity. (Prior code § 7534.11)

14.24.100 Crossing signal resolution—Compliance—Time limit.

A certified copy of the resolution ordering shall be served upon each of the railroad companies named in the resolution of necessity in the same manner as the service of a summons, and thereafter the railroad company or companies shall station the flagmen within fifteen (15) days after the service of the certified copy of the resolution ordering, or shall commence, within the fifteen (15) days, and thereafter diligently prosecute to completion, the placing of the automatic warning signals or signal bells, as the case may be. (Prior code § 7534.12)

CHAPTER 14.28 TREES AND SHRUBS*

14.28.010 Definitions.

The following words, as used in this Chapter, have the significance attached to them in this Section, unless the context clearly requires a different meaning:

A. "Director of Public Works" or "Director" means the person having control of the Public Works Department of the City or his designated representative.

B. "Groundcover" means grass, turf, or perennial plants that normally grow horizontally so as to conceal the ground surface, and that do not exceed eight inches (8") in height, and that will tolerate light pedestrian traffic.

C. "Maintain" means to prune, spray, brace, stake, treat for disease or injury, or perform other work to promote the life, growth, health or beauty of trees or shrubs, but does not include the watering or fertilizing of such plants.

D. "Recommended tree" means a tree designated or determined by the Director of Public Works to be the best suited to plant in a given location due to certain desirable characteristics of appearance, growth, root structure and adaptability to local conditions.

E. "Shrub" means and includes any woody vegetation or a woody plant having multiple stems and bearing foliage from the ground level up.

F. "Tree" means and includes any woody plant, normally having one (1) stem or trunk, bearing the foliage or crown well above ground level to heights of sixteen feet (16') or more upon maturity. (Ord. C-7642 § 1, 1999: prior code § 7510)

14.28.020 Planting.

The Director of Public Works shall regulate and control the planting or removal of trees planted along any City street. The Director shall designate the species, kind, number, spacing and method of planting.

No tree shall be planted closer than twenty-five feet (25') to another tree, or closer than fifteen feet (15') to any utility pole or light standard, or nearer than five feet (5') to any fire hydrant, water meter or gas meter, or closer than twenty feet (20') from the curb radius centers of any street intersection. No tree shall be planted in a planting strip which is less than thirty inches (30") in width between the sidewalk and curb, except that upon the approval of the Director of Public Works recommended trees designated by him may be planted in a planting strip between the sidewalk and curb which is less than thirty inches (30") in width but more than twenty-four inches (24") in width. (Ord. C-7642 § 2, 1999: prior code § 7510.1)

14.28.030 Maintenance—Public Works Department duties.

A. The Public Works Department will, except for watering and fertilizing, maintain, plant and remove all recommended trees planted along City streets. Trees planted along walks, lanes, or on City property, other than a public street right-of-way, will be maintained by the Public Works Department according to their classification, except that trees planted along alleys will not be maintained but will be removed when such trees are determined by the Director of Public Works to be a hazard or a public nuisance.

B. Trees planted along City streets shall be pruned to give a clearance of not less than twelve feet (12') over sidewalks and not less than sixteen feet (16') over streets as the size of the tree permits. (Ord. C-7642 § 3, 1999: prior code § 7510.2)

14.28.040 Maintenance—Permission required.

No person shall perform any maintenance except for watering or fertilizing on any tree planted along a City street or on any other City property except under emergency conditions and upon the written approval of the Director of Public Works. A person determined by the Director to be qualified may perform such special maintenance on such trees as the Director may approve. (Ord. C-7642 § 4, 1999: prior code § 7510.3)

*__State law reference__—Provisions on the planting of trees along public streets, Str. and H.C. § 22000 et seq.

14.28.050 Planting or removing—Conformance required.

No person shall plant, cut, trim, mutilate, prune, injure, remove, or in any way impair the growth of any tree growing in, on, or along any City street, or cause or permit the same to be done except as provided in this Chapter. (Prior code § 7510.4)

14.28.060 Planting or removing—Permit required.

No person may plant, cut, trim, prune, remove, or in any way interfere with the natural growth of any tree planted along City streets or on other City property without having first obtained a permit from the Director of Public Works to do such work. The Director may require any or all of the work approved by him to be performed under the supervision of the Public Works Department. (Ord. C-7642 § 5, 1999: prior code § 7510.5)

14.28.070 Open space around trunk.

No person shall place, or cause to be placed, any stone, cement or other substance about any tree planted along any street or on other City-owned property which shall impede the free entrance of water or air to the roots of the tree without leaving any open space of ground around the trunk of the tree of not less than eighteen inches (18") clearance all around. (Prior code § 7510.6)

14.28.080 Harmful substances prohibited.

No person shall deface, mutilate or attach or place any rope, wire, sign, poster, handbill or other thing to or on any tree growing along any City street or public place, or to cause any wire charged with electricity to come in contact with such tree; provided further, no person shall allow any brine, oil, liquid dye, salt or other substances injurious or harmful to plant life to lie, leak, flow, drip into or onto, or to come into contact with, the tree or the soil about the base of such plant. (Prior code § 7510.7)

14.28.090 Plantings in parking strip.

A. No person shall plant, or cause to be planted, any tree, shrub, plant or groundcover in the area between the sidewalk and curb, except as provided in this Chapter. Grass, turf or other groundcover plantings shall be permitted; provided, that such plantings shall not be allowed to attach themselves to or ascend the trunk of any tree. Planting, cutting, mowing, watering, fertilizing and all other maintenance of grass, turf or other groundcover in such parking strips will be performed by the adjacent property owner, subject to the restrictions in this Chapter.

B. Upon any violation of this Section, the Director of Public Works shall cause notice to be served upon the adjacent property owner requesting him to correct the violation. If, after seven (7) days after notice has been given, the violation has not been corrected, the Director is granted authority to provide for and enforce the removal of the violation by the Public Works Department. Costs incurred by the Public Works Department in removal or correction of the violation shall be billed to the adjacent property owner. (Ord. C-7642 § 6, 1999; prior code § 7510.8)

14.28.100 Protection during construction.

In the erection, alteration, construction or repairing of any building or structure, the owner thereof shall place, or cause to be placed, such guards around all nearby trees located along the street, alley, court or other public place as shall effectively prevent injury to them. (Prior code § 7510.9)

14.28.110 Nuisance abatement.

A. Any tree, shrub or plant located on private property infested with a disease or insects, which in the opinion of the Director of Public Works is infectious and may spread such disease or insects to other trees or shrubs in the City, shall constitute a public nuisance. The Director of Public Works shall cause notice to be served upon the property owner directing that the public nuisance be removed or abated within seven (7) days. If the public nuisance is not abated or removed within seven (7) days after notice is served, the Director is granted authority to direct public works employees to enter the property and spray, trim, prune,

treat or remove all or any part of the tree or shrub determined to be infested or to otherwise abate or cause to be abated the public nuisance.

B. Any tree or shrub, growing or standing on private property in such a manner that any portion thereof interferes with utility poles, lines, wires or electroliers lawfully erected, constructed or maintained along any public street, sidewalk, or restricts the flow of traffic or visibility of such street, sidewalks or intersections thereof to any person or persons lawfully using the same, or any such tree which has become diseased or weakened in such a manner as to be dangerous to persons lawfully using the streets or sidewalks, shall constitute a public nuisance. The Director of Public Works shall cause notice to be served upon the property owner directing that the public nuisance be abated or removed within seven (7) days. If the public nuisance is not abated or removed within seven (7) days after notice is served, the Director is authorized to abate or cause to be abated the public nuisance by trimming, pruning, cutting or removing all or such portion of the tree or shrub or plant as may be necessary to eliminate such interference, obstruction or condition.

C. Whenever it is necessary for the Director of Public Works to direct the use of City employees to abate, remove, or cause to be abated or removed, public nuisances as contained in this Section, he shall determine the cost of the work performed by the City employees and bill the property owner the cost of the work performed. (Ord. C-7642 § 7, 1999: prior code § 7510.10)

14.28.120 Interference with enforcement prohibited.

No person shall prevent, delay or interfere with the Director of Public Works, or any of his or her assistants, in the execution or enforcement of this Chapter; provided, however, that nothing in this Section shall be construed as an attempt to prohibit a public hearing, and providing further, that any person aggrieved by any act or determination of the Director of Public Works or his or her assistants in exercise of the authority granted in this Chapter shall have the right of appeal to the City Council whose decision, after public hearing of the matter, shall be final and conclusive. (Ord. C-7642 § 8, 1999: prior code § 7510.11)

CHAPTER 14.32 RESERVED*

CHAPTER 14.36 HOUSE NUMBERS ON CURBS

14.36.010 Permitted when.

Subject to the uniform standards provided in this Chapter and after obtaining a permit from the Chief of Police, property owners may paint their house number on the curb adjacent to their property. Persons who paint the house numbers of others must also obtain a permit from the Chief of Police and comply with the uniform standards of this Chapter. (Ord. C-6133 § 1, 1985; Ord. C-5784 § 1 (part), 1981: prior code § 3410.10(b) (part))

14.36.020 Permit procedure.

A. Persons desiring to paint house numbers on curbs shall obtain a written permit by filing an application with the Chief of Police on a form provided by the City. The application shall contain the following information:

1. Name and address of applicant;
2. Date of application;
3. Name of sponsoring organization, if any, whether nonprofit, charitable or otherwise;
4. Name and telephone number of responsible adult representing the organization; and
5. Precise description of area to be covered under permit.

B. The Chief of Police has discretionary authority to deny a permit in the interest of the public health, safety or welfare; and a permit shall be valid for a period of ninety (90) days after issuance.

C. A record of the issued permits shall be maintained and appropriate designations shall be made on a map so that house numbers are not repainted more than once every twelve (12) months.

***Editor's note**—ORD-19-0032 § 15, adopted Nov. 19, 2019, repealed Ch. 14.32 §§ 14.32.010—14.32.070 entitled "House Numbering," which derived from: ORD-06-0039 § 4, 2006; ORD-05-0035 § 1, 2005; and prior code §§ 82008200.6.

D. Every applicant shall be provided with a copy of the uniform standards provided in this Chapter and a sketch of the numbering standards.

E. No fee shall be charged for a permit unless authorized by a resolution of the City Council. In establishing a fee schedule by resolution pursuant to this Subsection 14.36.020.E, the City Council may create exemptions from such fees, in whole or in part, for such charitable organizations lawfully operating within the City as may be defined in and by the resolution. (Ord. C-5978 § 1, 1983: Ord. C-5784 § 1 (part), 1981: prior code § 3410.10(b)(1))

14.36.030 Uniform standards.

A. Dimensions. Numerals shall be three inches (3″) in height, approximately one and one-half inches (1½″) in width, and shall have a stroke width of one-half inch (½″). Spacing between numerals shall be approximately three-fourths inch (¾″). The house number shall be centered on a four inch by ten inch (4″ × 10″) rectangular background.

B. Style of numerals. Numerals shall be of a conventional design, with a vertical axis (not slanted). "Threes" shall be rounded, not flat, on top. "Fours" shall be closed at the top. "Nines" shall be inverted "sixes". "Ones" shall be a vertical line, or a vertical line with a flag not to exceed one-half inch (½″).

C. Colors. The rectangular background shall be white; numerals shall be black.

D. Materials. Paints shall be fast dry nondrip enamel, Krylon brand or equivalent.

E. Placement of markings. The house number legend shall be placed on the vertical curb face according to the following:

1. All legends shall be placed on the face of the curb. The top of the four inch by ten inch (4″ × 10″) rectangular background shall be placed not more than one-half inch (½″) below the top of the curb;

2. On interior (noncorner) lots with driveways and corner lots with driveways in the front, the legend shall be placed at a distance of five feet (5′) from the top of the driveway slope. The legend shall go on the same side of the driveway as the house; and

3. On corner lots with driveways on the side street, and on all lots with no driveway, the legend shall be placed on the curb face directly in front of the primary foot access to the house. (Ord. C-5784 § 1 (part), 1981: prior code §§ 3410.10(b)(2)(A—E))

14.36.040 Prohibited where.

No legends shall be placed in the following circumstances:

A. On any curb face where official City parking control markings (consisting of red, green, yellow, white or blue painting of the top and face of curb) exist;

B. Where there are multiple addresses exceeding two (2) per lot. However, when only two (2) addresses exist on a given lot, both addresses may be placed on the curb in front of the primary residence. The primary residence's address should be placed closest to the driveway, if one exists; and

C. For commercial properties except businesses on small lots where there is no possibility of confusing which address relates to which property. In no case shall shopping centers, no matter how small, be marked in such a manner. (Ord. C-5784 § 1 (part), 1981: prior code § 3410.10(b)(2)(F))

14.36.050 General restrictions.

A. In order to assure a reasonable quality of workmanship, the minimum age for persons doing the work shall be fourteen (14) years (or enrollment in the ninth grade).

B. Before starting work in the area described in the permit, the workers shall give written notice to all residents in the area of their intent to paint house numbers. This written notice shall include the following information:

1. The name, address and telephone number of the organization or person doing the work;

2. A statement advising the resident that the organization or person is permitted to solicit a donation for the work done but a donation is not required; and

3. A statement that this written notice is for information only and the work is not sponsored, endorsed or guaranteed by the City;

4. The form of written notice required by this Subsection 14.36.050.B shall, prior to its being given to residents, be submitted to the Chief of Police for review by the City as to form and content.

C. No house number shall be painted on any curb by any person until that person has obtained a permit pursuant to this Chapter, and has obtained and filed with the Chief of Police written approval of the owner of the property for the painting of the house number on the curb of that property. (Ord. C-6133 § 1, 1985: Ord. C-5784 § 1 (part), 1981: prior code § 3410.10(b)(3))

CHAPTER 14.40 SELLING OF TICKETS OF ADMISSION TO PLACES OF PUBLIC ASSEMBLAGE IN PUBLIC PLACES AND PLACES OPEN TO THE PUBLIC

14.40.010 Definitions.

For purposes of this Chapter, the following words and phrases are defined as follows:

A. "Place of public assemblage" means every place of public amusement or entertainment, stadium, auditorium, theater, athletic field, concert hall or arena which is open to the public upon compliance with requirements of admission thereto.

B. "Place open to the public" means every place of public amusement or entertainment, stadium, auditorium, theater, athletic field, concert hall or arena and the property upon which such place is located or any other property contiguous thereto which is under the same care, management or control. (Ord. C-6249 § 1 (part), 1986)

14.40.020 Prohibition of sales.

A. Except as otherwise provided in this Chapter, no person in or upon any public street, sidewalk, park or other public place shall sell or resell or offer to sell or resell any ticket of admission to a place of public assemblage.

B. Except as otherwise provided in this Chapter, no person in or upon any place which is open to the public shall sell or resell or offer to sell or resell any ticket of admission to a place of public assemblage. (Ord. C-6249 § 1 (part), 1986)

14.40.030 Exception.

The provisions of Section 14.40.020 shall not include or apply to the sale of such tickets at or from any ticket office, booth or other similar place regularly and permanently established and maintained therefor with the express permission and authorization of the person or governmental agency in charge, care or control of the property upon or in which such office, booth or place is located. (Ord. C-6249 § 1 (part), 1986)

CHAPTER 14.44 TEMPORARY FENCING AND GRAPHIC SCREENING

14.44.010 Purpose.

The provisions of this Chapter shall govern the erection of temporary fencing on public or private property during periods of construction impacting the public right-of-way. This Chapter establishes parameters for such fencing. (ORD-19-0032 § 13, 2019)

14.44.020 Definitions.

For the purpose of this Chapter, unless the context clearly requires a different meaning, the words, terms and phrases set forth in this Section are defined as follows:

"City" means the City of Long Beach, California, acting by and through the City Council.

"Development" means the division of a parcel of land into two (2) or more parcels; the construction, reconstruction, conversion, structural alteration, relocation or enlargement of any structure; any mining, excavation, landfill or land disturbance; or any use or extension of the use of land. This definition includes, but is not limited to subdivision pursuant to the Subdivision Map Act (commencing with Section 66410 of the California Government Code); any other division of land, including lot splits, except where the land division is brought about in connection with the purchase of the land by a public agency for public recreational use; change in the intensity of use of water,

or of access thereto; construction, reconstruction, demolition, or alteration of the size of any structure, including any facility of any private, public, or municipal utility; and the removal or harvesting of major vegetation other than for agricultural purposes, kelp harvesting, and timber operations which are in accordance with a timber harvesting plan submitted pursuant to the Z'berg-Nejedly Forest Practice Act of 1973 (commencing with Section 4511 of the California Public Resources Code).

"Graphics" is defined as visual images communicating a cohesive theme or concept.

"Person" means an individual, a receiver, a trustee, a co-partnership, a joint venture, a firm, an unincorporated association, a syndicate, a club, a society, a trust, a private corporation, a limited liability company, a public corporation, a municipal corporation, a County, a State, a national government, a municipal, County, State or federal agency, board or commission, a water district, a utility district, a political subdivision, a school district, a drainage, irrigation, levee, replenishment, reclamation or conservation district, and a flood control district, whether acting for himself/herself/itself or in any representative capacity.

"Structure" means any of the following, including but not limited to, building, road, pipe, flume, conduit, siphon, aqueduct, telephone line, electrical power transmission, and distribution line.

"Temporary fencing" is defined as any fencing or barrier installed for demolition, construction, or other purposes to protect a development site or shield a development site from view. (ORD-19-0032 § 13, 2019)

14.44.030 Permit required.

No person shall erect temporary fencing without first applying for and obtaining a permit from the City. The person requesting the permit shall submit all required items and pay all applicable permit fees. This includes:

A. Plan drawings clearly identifying the perimeter fencing dimensions, location, and impacts to the abutting rights-of-way.

B. Public Works permit shall be obtained for the purpose of street use of right-of-way.

C. Color renderings of the proposed graphics on a scaled drawing clearly identifying the location of each image.

D. Breakdown of the image area per the categories outlined in Section 14.44.040. (ORD-19-0032 § 13, 2019)

14.44.040 Graphic screening.

All temporary fencing erected on public or private property shall be screened with graphics representative of the City and/or the development being screened in accordance with all of the following conditions:

A. One hundred percent (100%) of the fenced area must contain graphics.

B. A minimum of forty percent (40%) of the fenced area must contain City images.

C. Up to thirty-five percent (35%) of fenced area can contain project specific images.

D. Up to twenty-five (25%) of fenced area can contain advertising for the site such as but not limited to, contact information for a broker, leasing agent, and/or opening dates.

E. The total square footage of fenced area shall be calculated by multiplying the height of the fence by the length of perimeter fencing that requires graphic screening.

EXCEPTION: The following are exempt from the requirement of this Section:

1. A project that has a duration of less than six (6) months per the submitted and approved construction schedule.

2. Graphic screening is not required on temporary fencing that is fronting or facing an alley or other areas not visible to the general public as determined by the City. (ORD-19-0032 § 13, 2019)

14.44.050 Maintenance.

All fencing and graphics shall be maintained in good condition. Damaged, torn, or faded fencing or graphic screening shall be replaced within five (5) days. (ORD-19-0032 § 13, 2019)

CHAPTER 14.48 ENCROACHMENTS INTO THE PUBLIC RIGHT-OF-WAY

14.48.010 Purpose.

The provisions of this Chapter shall govern the encroachment of structures or a portion of a building into the public right-of-way. This Chapter establishes parameters for such encroachments not only at grade but also above and below grade. (ORD-19-0032 § 14, 2019)

14.48.020 Definitions.

For the purpose of this Chapter, unless the context clearly requires a different meaning, the words, terms and phrases set forth in this Section are defined as follows:

"Applicant" means any person who applies for a permit under this Chapter.

"City" means the City of Long Beach, California, acting by and through the City Council.

"Contractor" means a person who, for a fixed sum, price, fee percentage or compensation other than wages, undertakes or offers to undertake or purports to have the capacity to construct, alter, repair, add to, improve or install surface improvements to streets or any part thereof, or makes or commences to make any excavation in or under the surface of any right-of-way for the installation, repair, or removal of any pipe, conduit, duct or tunnel or any other construction purpose in the right-of-way.

"Development" means the division of a parcel of land into two (2) or more parcels; the construction, reconstruction, conversion, structural alteration, relocation or enlargement of any structure; any mining, excavation, landfill or land disturbance; or any use or extension of the use of land. This definition includes, but is not limited to subdivision pursuant to the Subdivision Map Act (commencing with Section 66410 of the Government Code); any other division of land, including lot splits, except where the land division is brought about in connection with the purchase of the land by a public agency for public recreational use; change in the intensity of use of water, or of access thereto; construction, reconstruction, demolition, or alteration of the size of any structure, including any facility of any private, public, or municipal utility; and the removal or harvesting of major vegetation other than for agricultural purposes, kelp harvesting, and timber operations which are in accordance with a timber harvesting plan submitted pursuant to the Z'berg-Nejedly Forest Practice Act of 1973 (commencing with Section 4511 of the California Public Resources Code).

"Improvements" means the repair, modification, alteration, removal, or addition of facilities including, but not limited to, grading, paving, curbs, gutters, sidewalks, driveways, landscaping, street lighting, traffic signals, stairs, fences, walls, and any other work in the right-of-way.

"Installation and Maintenance Agreement" or "IMA" means the document required to formalize a binding agreement between an applicant and the City when work is being completed within the right-of-way that is not in compliance with or is outside of the City standards. The applicant is required to install and maintain the improvement for the duration of the agreement. This includes improvements such as artwork, decorative paving, or other objects. An improvement permit may not be issued until the IMA is executed.

"Permit" means the document issued to an applicant by the City under this Chapter and includes any amendment or supplement to any such permit.

"Permittee" means any person to whom a permit has been granted and issued under the terms of this Chapter.

"Person" means an individual, a receiver, a trustee, a co-partnership, a joint venture, a firm, an unincorporated association, a syndicate, a club, a society, a trust, a private corporation, a limited liability company, a public corporation, a municipal corporation, a County, a State, a national government, a municipal, County, State or federal agency, board or commission, a water district, a utility district, a political subdivision, a school district, a drainage, irrigation, levee, replenishment, reclamation or conservation district, and a flood control district, whether acting for himself/herself/itself or in any representative capacity.

"Right-of-way" means any easement or land owned by the City and used or designated for use as a street, parkway, alley, utility corridor, walkway, promenade, or bike path, and the surfaces thereof, and the airspace above such surfaces and the subsurface area below such surfaces and includes any right-of-way to be dedicated in the future.

"Structure" means any of the following, including but not limited to, building, road, pipe, flume, conduit, siphon, aqueduct, telephone line, electrical power transmission, and distribution line. (ORD-19-0032 § 14, 2019)

14.48.030 Encroachments below grade.

A portion of a building or structure erected below grade that is necessary for structural support of the building or structure shall not project beyond the lot line, except that the footings, shoring devices, or other similar supports as determined by the City shall not project more than twelve (12) inches beyond the lot line. Encroachments below grade may be subject to fees as outlined in Chapter 14.08. (ORD-19-0032 § 14, 2019)

14.48.040 Encroachments above grade.

A. Encroachments into the public right-of-way above grade and below eight feet (8') in height are prohibited. This includes, but is not limited to, any doors, windows, gates and other moveable objects that can open, project or encroach into the public right-of-way. All existing encroachments into a street or alley must be remedied as part of a new development.

EXCEPTIONS: The following existing openings, projections or encroachments into a public right-of-way that cannot feasibly be modified as part of a new development may be permitted provided a warning device or other similar protection measure approved by the City is installed to minimize impact to the public. All improvements within the public right-of-way shall comply with City standards.

1. Existing fenestrations.

2. Existing steps, ramps, or architectural features that are in a sidewalk.

B. Encroachments into the public right-of-way above eight feet (8') in height above a sidewalk are allowed for awnings, canopies, signs, architectural features, balconies, and windows. These improvements can encroach over the property line one (1) inch for each additional one inch (1") of clearance above eight feet (8'). The maximum encroachment shall be four feet (4') at a minimum clearance height of twelve feet (12').

C. Encroachments into the public right-of-way above seventeen feet (17')in height above a sidewalk or alley are allowed for pedestrian walkways and bridges. The maximum encroachment shall be four feet (4') unless they span the entire length of the public right-of-way to connect adjacent private parcels.

D. Encroachments into the public right-of-way above seventeen feet (17') in height are allowed for lighting and other uses approved by the City. (ORD-19-0032 § 14, 2019)

14.48.050 Permits required.

All encroachments into the public right-of-way shall applying for and obtaining a permit from the City. The person requesting the permit shall submit all required items and pay all applicable permit fees. This include plan drawings clearly identifying the encroachment and applicable dimensions with reference to the property line and public infrastructure within abutting public right-of-way. (ORD-19-0032 § 14, 2019)

LONG BEACH, CALIFORNIA

MUNICIPAL CODE

VOLUME II

A Republication of the General Ordinances of Long Beach, California

---

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

VOLUME II

Title 15

PUBLIC UTILITIES

Chapter 15.01 Sewers—Rules, Regulations and Charges

15.01.010 General.
15.01.020 Administration of rules.

Chapter 15.04 Sewers—Definitions

15.04.010 Generally.
15.04.020 Applicant.
15.04.030 Approved.
15.04.040 Building.
15.04.045 Building sewer.
15.04.050 Cesspool.
15.04.060 Connection, house.
15.04.070 Domestic sewage.
15.04.080 Dry well.
15.04.090 Effluent.
15.04.100 Floatable oil and grease.
15.04.110 Floating hydrocarbon oil.
15.04.120 Foundation.
15.04.150 Industrial connection sewer.
15.04.160 Industrial wastewater.
15.04.170 Industrial wastewater pretreatment plant.
15.04.180 Inspector.
15.04.190 Interceptor, retention.
15.04.200 Lot.
15.04.210 Main line sewer.
15.04.220 Person.
15.04.230 Private sewage disposal system.
15.04.240 Private sewer.
15.04.250 Public sewer.
15.04.260 Saddle.
15.04.270 Seepage hole.
15.04.280 Septic tank.

15.04.290 Sewage.
15.04.300 Sewage pumping plant.
15.04.310 Sewage treatment plant.
15.04.311 Sewer lateral.
15.04.315 Sewer system.
15.04.320 Structure.
15.04.330 Trap.
15.04.340 Wastewater.

Chapter 15.08 Sewers—Permits

15.08.010 Required.
15.08.020 Application form.
15.08.040 Indemnification of City.
15.08.070 Special house connection sewers.
15.08.080 Main line tapping.
15.08.090 House connection abandonment.
15.08.120 Nontransferable.

Chapter 15.16 Sewers—Industrial Waste and Wastewater

15.16.010 Standards for discharge.
15.16.020 Permit required.
15.16.040 Change in discharge.
15.16.070 Wastewater standards.
15.16.080 Wastewater disposal permit required.

Chapter 15.20 Sewers—Use Regulations

15.20.010 Discharges prohibited.
15.20.050 Building sewer across another lot.
15.20.060 Maintenance.
15.20.070 Existing building sewers.
15.20.080 Backflow prevention.
15.20.090 Backflow noncompliance.
15.20.100 Septic tank abandonment.
15.20.110 Dumping contents of septic tanks or cesspools.
15.20.130 Opening manhole.
15.20.140 Damaging sewers prohibited.
15.20.150 Disposal of uncontaminated water.
15.20.160 Cellar and shower drainage.
15.20.170 Maintenance of facilities.

15.20.180 Inspection.
15.20.200 Exceptions authorized.

Chapter 15.24 Sewers—Installation

15.24.010 Lowering water level.
15.24.090 Pipe—Laying method.
15.24.100 Main line sewers—Slope.
15.24.120 Pipe—Disturbing after joints made.
15.24.130 Depth of lines.
15.24.150 End structures.
15.24.160 Soil conditions.
15.24.170 Benchmarks.
15.24.180 Substructures.
15.24.190 Septic tanks, cesspools and seepage holes.
15.24.200 Building sewers—Each lot.
15.24.210 Building sewers—Grade.
15.24.220 House connection grade.
15.24.230 Vitrified clay pipe—Placement.
15.24.240 Reducers.
15.24.250 Cleanouts.
15.24.260 Direct connection with trunk sewer.
15.24.270 House connections—Straight route.
15.24.280 House connections—Testing.
15.24.290 Testing in sections.
15.24.300 Cemented joints.

Chapter 15.28 Sewers—Inspection and Enforcement

15.28.010 Right of entry.

Chapter 15.32 Water and Electrode Wells

15.32.010 Purpose.
15.32.020 Definitions.
15.32.030 Sanitary or health hazard correction.
15.32.040 Sealing required.
15.32.050 Log of well required.
15.32.060 Location near pollution source prohibited.
15.32.070 Distance from sewage disposal or animals.
15.32.080 Flood protection.
15.32.090 Protection from surface contamination.

15.32.100 Water well—Construction.
15.32.110 Electrode well—Construction.
15.32.120 Surface structures.
15.32.130 Disinfection of water.
15.32.140 Permit—Required.
15.32.150 Reconstruction or conversion.
15.32.160 Permit—Application investigation.
15.32.170 Permit—One location—Suspension or revocation.
15.32.180 Permit—Appeal hearing.
15.32.190 Water well—Destruction.
15.32.200 Electrode well—Destruction.
15.32.210 Domestic water wells—Conformance of existing wells required.
15.32.220 Domestic water wells—Bacteriological standards.
15.32.230 Pump discharge line elevation.
15.32.240 Rules establishment.

Chapter 15.34 Wireless Telecommunications Facilities in the Public Rights-of-Way

15.34.010 Purpose and objectives.
15.34.020 Definitions.
15.34.030 Requirements and standards for wireless telecommunications facilities in the public right-of-way.
15.34.040 Other provisions.
15.34.050 Severability clause.

Chapter 15.36 Gas Rates

15.36.010 Categories established.
15.36.020 Schedule 1—Residential.
15.36.030 Schedule 2—Small commercial and industrial service.
15.36.040 Schedule 3—Commercial and industrial service.
15.36.050 Schedule 4—Large commercial and industrial service.
15.36.060 Schedule 5—Compressed natural gas service.
15.36.070 Schedule 6—Utility electric generation.
15.36.071 Schedule 7—Natural gas service for cogeneration.
15.36.072 Schedule 8—Natural gas service for enhanced oil recovery.
15.36.080 Schedule 9—Transportation and exchange service.
15.36.085 Schedule 10—Air conditioning equipment service.
15.36.090 Other fees and charges.
15.36.095 Gas equipment incentives.
15.36.100 Increase or decrease.

15.36.120 Low income gas discount.

Chapter 15.40 Gas Regulations

15.40.010 Definitions.
15.40.020 Service requirements and conditions.
15.40.030 Credit—Establishment.
15.40.040 Credit—Deposits.
15.40.050 Termination of service.
15.40.060 Reconnection charges.
15.40.070 Payment of bills.
15.40.075 Refund of gas utility charges.
15.40.080 Pipelines, meters and appliances.
15.40.090 Meter reading and correction.
15.40.100 Meter tests.
15.40.110 Adjustment of bills for meter error.
15.40.120 Notices.
15.40.130 Gas pipeline extensions.
15.40.140 Reserved.
15.40.150 Reserved.
15.40.160 Compensation for damages.
15.40.170 Temporary service.
15.40.180 Supply to separate premises and resale of gas.
15.40.190 Right of ingress and egress.
15.40.200 Customer's responsibility for equipment.
15.40.210 Installation and modification of service connections.
15.40.220 Change of customer's appliances.
15.40.230 Tampering with or tapping service pipes, meters, etc.
15.40.240 Usage of service detrimental to others.
15.40.250 Authorization to operate within City.

Chapter 15.44 Pipelines and Utilities

15.44.010 Definitions.
15.44.020 Use of City property prohibited.
15.44.030 Permit—Required.
15.44.040 Permit—Application.
15.44.050 Permit supplement—Application.
15.44.060 Permit—Issuance.
15.44.070 Conditions for use of City property.
15.44.080 Time limit to commence work.

15.44.090 Compliance required.
15.44.100 Permit fees.
15.44.110 No bonds or insurance for governmental agencies.
15.44.120 Relocation of facilities.
15.44.130 Identification of facilities.
15.44.140 Repairs to facilities.
15.44.150 Abandonment of facilities.
15.44.160 Removal or disconnection of unauthorized facilities.
15.44.170 Abandonment in place of City's facilities.
15.44.180 Permit—Revocation.
15.44.190 Insurance and indemnity.
15.44.200 Permanent paving.
15.44.210 Inventory or description required.
15.44.220 Permit—Transfer.
15.44.230 Bond or other security.
15.44.240 Permit—Not to authorize excavations.
15.44.250 Annual certification—Hazardous liquid pipelines.

Chapter 15.48 Underground Utility Districts

15.48.010 Definitions.
15.48.020 Hearing.
15.48.030 Establishment.
15.48.040 Construction or maintenance of overhead facilities prohibited.
15.48.050 Emergency exception.
15.48.060 Exempt facilities.
15.48.070 Notice to property owners and utilities.
15.48.080 Utility company responsibility.
15.48.090 Persons responsible.
15.48.095 Notification and disconnection.
15.48.100 City responsibility.
15.48.110 Time extension.
15.48.120 Penalty for violation.

Chapter 15.74 Cable System Regulatory Ordinance of the City of Long Beach

15.74.005 Authority and findings.
15.74.010 Title.
15.74.015 Definitions.
15.74.020 Franchise terms and conditions.
15.74.025 Franchise applications and renewal.

15.74.030 Minimum consumer protection and service standards.
15.74.035 Franchise fee and financial requirements.
15.74.040 Construction requirements.
15.74.045 Technical standards.
15.74.050 Indemnity and insurance.
15.74.055 Records and reports.
15.74.060 Review of system performance.
15.74.065 Franchise violations.
15.74.070 Force majeure; Grantee's inability to perform.
15.74.075 Abandonment or removal of Franchise property.
15.74.080 City and Subscriber rights.
15.74.085 Severability.

Chapter 15.75 Regulation of State Video Franchise Holders

15.75.010 Purpose and authority.
15.75.020 State video franchise and PEG fees.
15.75.030 Audit authority.
15.75.040 Customer service penalties under State franchises.
15.75.050 City response to State franchise applicants.
15.75.060 Reauthorization.

CHAPTER 15.01 SEWERS—RULES, REGULATIONS AND CHARGES

15.01.010 General.

The current edition of the rules, regulations and charges governing water and sewer service as approved by the Board of Water Commissioners is incorporated by this reference. A copy of the rules, regulations and charges governing water and sewer service is available in the office of the General Manager. (Ord. C-7173 § 25 (part), 1994)

15.01.020 Administration of rules.

The General Manager is charged by the Board of Water Commissioners with the responsibility to administer the rules, regulations and charges governing water and sewer service. (Ord. C-7173 § 25 (part), 1994)

CHAPTER 15.04 SEWERS—DEFINITIONS

15.04.010 Generally.

For the purpose of Chapters 15.04 through 15.28, unless the context clearly requires a different meaning or a different meaning is expressed in the Rules, Regulations and Charges Governing Water and Sewer Service, the words, terms and phrases used in those Chapters are defined as follows. If no definition is given below, then the words, terms, and phrases used in Chapters 15.04 through 15.28 shall have the meanings given to them in the Rules, Regulations and Charges Governing Water and Sewer Service. (Ord. C-7173 § 1 (part), 1994: prior code § 7570 (part))

15.04.020 Applicant.

"Applicant" means any person who applies for a permit under Chapters 15.04 through 15.28 or the Rules, Regulations and Charges Governing Water and Sewer Service. (Ord. C-7173 § 1 (part), 1994: prior code § 7570(a))

15.04.030 Approved.

"Approved" means the approval of the General Manager of the Long Beach Water Department unless otherwise identified in Chapters 15.04 through 15.28. (Ord. C-7173 § 1 (part), 1994: prior code § 7570(b))

15.04.040 Building.

"Building" means any structure built for the support, shelter or enclosure of persons, animals, chattels or property of any kind. (Prior code § 7570(c))

15.04.045 Building sewer.

"Building sewer" means that portion of a sewer lateral beginning two feet (2') from the exterior wall of a building or foundation of a building and extending to its connection with the house connection at the property line. (Ord. C-7173 § 2, 1994: Ord. C-6520 § 1 (part), 1988)

15.04.050 Cesspool.

"Cesspool" means an excavation in the ground made for receiving crude sewage and so constructed that the solid matter is retained and the liquid portion is permitted to seep away. (Prior code § 7570(d))

15.04.060 Connection, house.

"House connection" means that portion of a sewer lateral in the street which extends from the wye or tee branch or saddle of a main line sewer or other point of connection with a main line sewer to the property line. (Ord. C-7173 § 3, 1994: prior code § 7570(e))

15.04.070 Domestic sewage.

"Domestic sewage" means the waterborne wastes associated with human habitations and may be contaminated with human excreta, offal or feculent matter. (Prior code § 7570(f))

15.04.080 Dry well.

"Dry well" means an excavation in the ground made for receiving the overflow from a swimming pool or water tank. (Prior code § 7570(g))

15.04.090 Effluent.

"Effluent" means partially or completely treated sewage flowing out of any sewage treatment device. (Prior code § 7570(h))

15.04.100 Floatable oil and grease.

"Floatable oil and grease" means the oil and grease floating on the surface of the sample of water when it is retained for one (1) hour in a quiescent condition in a vessel with vertical walls filled to a depth of twenty-six (26) centimeters. (Prior code § 7570(i))

15.04.110 Floating hydrocarbon oil.

"Floating hydrocarbon oil" means the amount of hydrocarbon floating to the surface of a sample of water under the same conditions as prescribed in the definition of floatable oil and grease. (Prior code § 7570(j))

15.04.120 Foundation.

"Foundation" means the spreading course at the base or bottom of a foundation wall, column or pier. (Prior code § 7570(k))

15.04.150 Industrial connection sewer.

"Industrial connection sewer" means a sewer lateral used primarily for the discharge of industrial wastewater. (Ord. C-7173 § 4 (part), 1994: prior code § 7570(n))

15.04.160 Industrial wastewater.

"Industrial wastewater" means any water from an industrial process or from wholesale or retail establishments disposing of waste substances. Such process shall include production or refining of petroleum and petroleum products, processing of foods or beverages, the production of fertilizer, keeping of livestock and operation of dairies, manufacture of paper, production or dyeing of textiles, production of soap or detergents or chemicals, cleaning of tanks, tank cars or barrels, plating of metals, processing or reclamation of refuse, all kinds of manufacturing and other similar operations, the washing of equipment or spaces used in industrial operations and the disposal of waste products contained in liquids from laundries, hospitals, grocery stores, restaurants and other public establishments. Unless the sewage contains the waste substances above-described, industrial wastewater shall not include wastewater resulting from the operation of hotels, motels, schools or other retail establishments other than those listed above, nor shall industrial wastewater include wastewater from the operation of vehicle service stations, wash racks or garages. Industrial wastewater shall not include any domestic sewage from industrial or retail establishments. (Ord. C-7173 § 4 (part), 1994: prior code § 7570(o))

15.04.170 Industrial wastewater pretreatment plant.

"Industrial wastewater pretreatment plant" means any works or device for pretreatment of industrial wastewater prior to discharge into the public sewer. (Ord. C-7173 § 4 (part), 1994: prior code § 7570(p))

15.04.180 Inspector.

"Inspector" means the authorized inspector, deputy, agent or representative of the General Manager or the City. (Ord. C-7173 § 4 (part), 1994: prior code § 7570(q))

15.04.190 Interceptor, retention.

"Retention interceptor" means a device for retaining sand, silt, grit mineral material, petroleum solvent, grease or oil by gravity-differential separation from wastewater and of a design and capacity approved by the General Manager. (Ord. C-7173 § 4 (part), 1994: prior code § 7570(f))

15.04.200 Lot.

"Lot" means any parcel or piece of land as bounded, defined or shown upon the latest map, plat or deed recorded in the office of the County Recorder. (Prior code § 7570(s))

15.04.210 Main line sewer.

"Main line sewer" means any sewer, but not including a sewer lateral. (Ord. C-7173 § 5, 1994: prior code § 7570(t))

15.04.220 Person.

"Person" means an individual; a receiver; a trustee; a copartnership; joint adventures; a firm; an unincorporated association; a syndicate; a club; a society; a trust; a private corporation; a public corporation; a municipal corporation, board, commission or department thereof; a county; a state; a national government; a municipal, county, state or federal agency, board or commission; a water district; a school district; a utility district; a political subdivision; and a drainage, sanitation, sewer maintenance, sanitary, irrigation, levee, reclamation, water, conservation or flood control district, whether acting for himself or itself or in any other representative capacity; or any other group or combination acting as a unit, and the plural as well as the singular number. (Prior code § 7570(u))

15.04.230 Private sewage disposal system.

"Private sewage disposal system" means a septic tank, cesspool, seepage hole, or such other facility or facilities as may be permitted under Chapters 15.04 through 15.28 and the Rules, Regulations and Charges Governing Water and Sewer Service. (Ord. C-7173 § 6 (part), 1994: prior code § 7570(v))

15.04.240 Private sewer.

"Private sewer" means a sewer constructed, owned and operated by a private party or parties, other than a sewer lateral, to serve one or more buildings which are not immediately adjacent to a public sewer so as to connect the building or buildings to a public sewer, and irrespective of whether the sewer is constructed in public or private property. (Ord. C-7173 § 6 (part), 1994: prior code § 7570(w))

15.04.250 Public sewer.

"Public sewer" means the main line sewer, constructed in a street, highway, alley, place, or right-of-way dedicated to public use. Public sewer does not include a sewer lateral or a private sewer. (Ord. C-7173 § 6 (part), 1994: prior code § 7570(x))

15.04.260 Saddle.

"Saddle" means the fitting installed on a main line sewer by cutting a hole in the sewer main and installing a prefabricated fitting acting as a wye or tee. (Ord. C-7173 § 6 (part), 1994: prior code § 7570(y))

15.04.270 Seepage hole.

"Seepage hole" means an excavation in the ground made for receiving only a clarified effluent and into which no crude sewage is permitted to flow. (Prior code § 7570(z))

15.04.280 Septic tank.

"Septic tank" means an approved watertight tank or compartment for use in eliminating, disposing, digesting or reducing solid substances in sewage before disposing of the effluent in a cesspool, seepage hole or leaching system. (Prior code § 7570(aa))

15.04.290 Sewage.

"Sewage" means any waterborne wastes transported by the public sewer, except stormwater, groundwater, roof or yard drainage, and includes domestic sewage, industrial wastewater and wastewater or contaminated water of any origin. (Ord. C-7173 § 7, 1994: prior code § 7570(ab))

15.04.300 Sewage pumping plant.

"Sewage pumping plant" means any works or device used to raise sewage from a lower to a higher level or to overcome friction in a sewer line (Prior code § 7570(ac))

15.04.310 Sewage treatment plant.

"Sewage treatment plant" means any works or device for treating sewage, except a septic tank. (Prior code § 7570(ad))

15.04.311 Sewer lateral.

"Sewer lateral" means the house connection and building sewer. (Ord. C-7173 § 26, 1994)

15.04.315 Sewer system.

"Sewer system" means the City sewer system for transporting sewage, including but not limited to pipes, mains, interceptors, manholes, pump stations, and appurtenances necessary for the collec-

tion, transportation, and removal of sewage to an appropriate plant for treatment but excluding local street sewers or laterals (as distinguished from main trunk, interceptor and outfall sewers), on-site local sewers, house connections, private sewage disposal systems and the County sewage treatment plant. (Ord. C-7173 § 8, 1994: Ord. C-6520 § 1 (part), 1988)

15.04.320 Structure.

"Structure" means that which is built or constructed, an edifice or building of any kind, or any piece of work artificially built up or composed of parts jointed together in some definite manner. (Prior code § 7570(ae))

15.04.330 Trap.

"Trap" means any approved equipment or appliance for sealing an outlet from a sewer lateral to prevent the escape of sewer gas from a main line sewer through a sewer lateral. (Ord. C-7173 § 9, 1994: prior code § 7570(af))

15.04.340 Wastewater.

"Wastewater" means any water from the operation of vehicle service stations, wash racks or garages, but not including domestic sewage. (Prior code § 7570(ag))

CHAPTER 15.08 SEWERS—PERMITS

15.08.010 Required.

A. No person except employees of the Water Department, its independent contractors, agents, or assigns in the performance of their duties shall construct or alter a public sewer, a sewage pumping plant, a private sewer in a public street or a house connection or make a connection from a building sewer to a house connection without first obtaining a permit from the General Manager. No person, except a person holding a valid permit issued by the plumbing division of the planning and building department or other administrative official of the City authorized to issue such permit, shall construct or alter any private sewer on private property, sewer lateral, sewage treatment plant, private sewage system, sewage pumping plant, industrial wastewater pretreatment plant, interceptor, or other similar appurtenances or devices in the City without first obtaining a permit from the General Manager.

B. No permit shall be issued to any person to construct or alter any sewer within a public street, unless the person holds a valid sewer contractor's license, except that a permit shall be issued to:

1. A person holding a valid permit issued by the Plumbing Division of the Planning and Building Department authorizing the installation of a sewer lateral may be issued a permit to connect the house connection to the connecting sewer on private property or at the property line;

2. A County sanitation district when the work is to be performed by employees or contractors of the county sanitation district. (Ord. C-7173 § 10 (part), 1994: prior code § 7570.2)

15.08.020 Application form.

The General Manager shall furnish to an applicant for a permit under this Chapter or the rules, regulations and charges governing water and sewer service a printed form of application. The applicant shall furnish the information which is necessary to complete the form and, if necessary, shall furnish such additional information as may be required by the General Manager so as to enable him to determine whether the proposed work or use complies with the provisions of this Chapter and the rules, regulations and charges governing water and sewer service and other statutes and ordinances pertaining to such work or use. (Ord. C-7173 § 10 (part), 1994: prior code § 7570.3)

15.08.040 Indemnification of City.

The permit shall provide that the person to whom a permit is granted shall defend, indemnify and hold harmless the City, the Board of Water Commissioners, their officials, employees and agents from and against any and all claims, demands, damages, causes of action, loss, or liability which the City, the Board of Water Commission-

ers, their officials, employees or agents may incur arising from or in any manner connected with any work or use authorized under the permit. (Ord. C-7173 § 11, 1994: prior code § 7570.5)

15.08.070 Special house connection sewers.

The General Manager may require that a permit for a sewer lateral be applied for as a main line sewer if the proposed house connection has a slope of less than one-fourth inch (1/4") per foot or there are obstructions in the public street which will interfere with the installation. (Ord. C-7173 § 12 (part), 1994: prior code § 7570.8)

15.08.080 Main line tapping.

No person except an official, agent or employee of the City or a person authorized by the City shall tap a main line sewer. If a person desires to connect a sewer lateral to a main line sewer and in the opinion of the General Manager no suitable wye, tee or chimney exists to which the connection can be made, then the person shall file an application with the General Manager to have installed a saddle. If a main line sewer is to be tapped for the installation of a saddle, the person shall do all excavation work necessary to expose the main line sewer. The person shall pay to the Water Department the cost of tapping the main line and installing the saddle at the rate stated on the sewer permit and inspection fee schedule or, if no rate is stated therein, as stated in the rules, regulations and charges governing water and sewer service. (Ord. C-7173 § 12 (part), 1994: Ord. C-5406 § 1, 1978: prior code § 7570.24)

15.08.090 House connection abandonment.

Before the use of any sewer lateral is discontinued, the person discontinuing the use, or a person authorized by him to do so, shall apply for and obtain from the General Manager a permit to cut and cap the sewer. The permit shall specify the manner in which the sewer is to be cut and capped and the person to whom the permit is issued shall comply with the provisions of the permit. (Ord. C-7173 § 12 (part), 1994: prior code § 7570.25)

15.08.120 Nontransferable.

Permits issued under this Chapter or by the General Manager, except industrial wastewater disposal permits and permits for disposal of wastewater, are not transferable and a sewer connection shall not be made at any place other than the location specifically designated in the permit provided, however, that if the construction or installation is fully completed pursuant to a permit issued under this Chapter or by the General Manager, then the successor in interest of the facility or facilities so constructed or installed shall not be required to obtain a permit to use the facility or facilities. The successor in interest shall comply with all other provisions of Chapters 15.04 through 15.28 of this Code and with the rules, regulations and charges governing water and sewer service. (Ord. C-7173 § 13, 1994: prior code § 7570.37)

CHAPTER 15.16 SEWERS—INDUSTRIAL WASTE AND WASTEWATER

15.16.010 Standards for discharge.

No person shall discharge industrial wastewater into a main line sewer unless the industrial wastewater conforms to the following requirements:

A. The content of total oil and grease shall not exceed six hundred (600) milligrams per liter;

B. The content of oil and grease floating or capable of floating shall not exceed twenty-five (25) milligrams per liter;

C. The content of hydrocarbon oil floating or capable of floating shall not exceed ten (10) milligrams per liter;

D. The standard five (5) day biochemical oxygen demand shall not exceed one thousand (1,000) milligrams per liter;

E. The suspended solids content shall not exceed one thousand (1,000) milligrams per liter;

F. The dissolved sulphide content shall not exceed one-tenth (1/10) of a milligram per liter; and

G. The pH shall not be below six (6). (Ord. C-7173 § 14 (part), 1994: prior code § 7570.9)

15.16.020 Permit required.

A. Before any person discharges any industrial wastewater into a main line sewer maintained by the Water Department, such person shall obtain an industrial wastewater disposal permit from sanitation districts of the County for each industrial connection. Prior to submittal of a permit application to the sanitation districts of the County, the application shall be reviewed and approved by the General Manager. On submission of the permit application to the General Manager for processing, the applicant shall pay a processing fee as set forth in the industrial wastewater disposal permit and inspection fee schedule or in the rules, regulations and charges governing water and sewer service.

B. Any person desiring to discharge industrial wastewater into a main line sewer maintained by the Water Department shall file an application for such a permit with the General Manager on a form furnished by the Water Department. In the application such person shall state information regarding the kind and size of the industrial operation producing such industrial wastewater, the quantity and characteristics of such wastewater, detailed plans for any pretreatment facilities planned to prevent discharge of improper materials into the sewer, together with such other information as may be required by the General Manager.

C. If the General Manager finds from the application and from such other investigation as he desires to make or cause to be made that the quality of the industrial wastewater and the facilities for discharge into the sewer conform to this Chapter and the rules, regulations and charges governing water and sewer service and to the provisions of this Code and other applicable statutes, that any required pretreatment facilities have been constructed in accordance with approved plans and the applicable laws, rules and ordinances, and that the main line sewer capacity will handle the sewage flow, the General Manager may issue the revocable permit. The revocable industrial wastewater disposal permit so issued shall state the nature of the industrial wastewater, the nature and amount of the flow which the permittee may discharge into the main line sewer and such other conditions and restrictions as the General Manager may deem necessary in order that the public sewer may serve its intended purpose. (Ord. C-7173 § 14 (part), 1994: Ord. C-5405 § 1, 1978: prior code § 7570.10)

15.16.040 Change in discharge.

If a person to whom an industrial wastewater disposal permit is issued desires to make any alterations in pretreatment facilities or alteration of connections to the sewer, or if such person desires to discharge additional industrial wastewater into a main line sewer in excess of the amount previously authorized or desires to discharge into a main line sewer industrial wastewater of a different kind or character than previously authorized, that person shall file an application for such change with the General Manager and request that a new permit be issued. (Ord. C-7173 § 15, 1994: prior code § 7570.12)

15.16.070 Wastewater standards.

No person shall discharge wastewater into a main line sewer unless such wastewater conforms to the following requirements:

A. The content of total oil and grease shall not exceed six hundred (600) milligrams per liter;

B. The content of floatable oil and grease shall not exceed twenty-five (25) milligrams per liter;

C. The content of floatable hydrocarbon oil shall not exceed ten (10) milligrams per liter;

D. The standard five(5) day biochemical oxygen demand shall not exceed one thousand (1,000) milligrams per liter;

E. The suspended solids content shall not exceed one thousand (1,000) milligrams per liter;

F. The dissolved sulphide content shall not exceed one-tenth ($^1/_{10}$) of a milligram per liter;

G. The pH shall not be below six (6). (Prior code § 7570.15)

15.16.080 Wastewater disposal permit required.

Before any person discharges any wastewater into a main line sewer, such person shall obtain

from the General Manager a revocable wastewater permit for each industrial connection sewer. Any person desiring to discharge wastewater into a main line sewer shall file an application for such permit with the General Manager on a form to be furnished by the Water Department. In the application, the person shall state such information as to the size of operations producing wastewater, the probable quantity of wastewater, and plans for the separation of grease, oil and solids from the wastewater, together with such other information as may be required by the General Manager. If the General Manager finds from the application and from such other investigation as he desires to make or cause to be made, that the wastewater and the facilities for discharge into the main line sewer conform to Chapters 15.04 through 15.28 and the rules, regulations and charges governing water and sewer service; that the interceptor is properly constructed and that the capacity of the main line sewer is sufficient to handle the discharge, the General Manager may issue the revocable permit. The revocable wastewater permit so issued shall state the approximate amount of flow which the person will be authorized to discharge into the main line sewer and such other conditions and restrictions as the General Manager may deem necessary in order that the public sewer may serve its intended purpose. (Ord. C-7173 § 16, 1994: prior code § 7570.16)

CHAPTER 15.20 SEWERS— USE REGULATIONS

15.20.010 Discharges prohibited.

Except as provided in this Chapter, no person shall discharge or cause to be discharged into any public sewer or into any opening of any public sewer in the City, the following:

A. Earth, sand, rocks, ashes, gravel, plaster, concrete, glass, metal filings or metal objects or other materials which will not be carried by the sewer stream or anything which may obstruct the flow of sewage in the sewer or any object which will cause clogging of a sewage pump or a sewage sludge pump;

B. Any garbage which has not been first shredded so that each particle is not more than three-eighths (3/8) of an inch in any dimension or any garbage containing broken glass;

C. Any solid or semisolid material such as garbage, trimmings, cuttings, offal, or other waste produced in the processing of meats, fruits, vegetables, foodstuffs or similar materials except garbage produced which meets the requirements of Chapters 15.04 through 15.28 and the rules, regulations and charges governing water and sewer service;

D. Any volatile liquids or substances which can produce toxic or flammable atmospheres in the sewer;

E. Any compounds which may produce strong odors in the sewer or sewage treatment plant;

F. Any stormwater or runoff from any roof, yard, driveway or street;

G. Any materials which will cause damage to any part of the sewer system or abnormal sulphide generation or abnormal maintenance or operation costs of any part of the sewer system or which may cause any part of the sewer system to become a nuisance or a menace to public health or a hazard to workers or which will cause objectionable conditions at the final point of disposal of the sewage;

H. Any liquid having a temperature in excess of one hundred twenty (120) degrees Fahrenheit;

I. Unpolluted water from refrigeration systems, air conditioning systems, industrial cooling systems, swimming pools or other unpolluted water from any origin except as authorized by the General Manager;

J. Any radioactive waste which constitutes or may constitute a public health hazard or endanger workmen charged with the maintenance of public sewers. (Ord. C-7173 § 17 (part), 1994: prior code § 7570.1)

15.20.050 Building sewer across another lot.

No building sewer shall be joined to any public sewer unless the building sewer is entirely located on the lot on which the building or structure is located unless it is impossible or impractical to make such connection. If a lot or parcel of land

requiring a building sewer is so situated that access to the public sewer is not possible except across some other lot or parcel of land, a building sewer may be constructed across some other lot or parcel of land. The application for the permit shall be accompanied by a recorded easement executed by the owner of the lot or parcel of land across which access is required. The issuance of a permit to construct a building sewer across another lot or parcel of land shall not in any manner constitute an approval of the easement. (Ord. C-7173 § 17 (part), 1994: prior code § 7570.52)

15.20.060 Maintenance.

All building sewers, industrial connection sewers, private sewage disposal systems and appurtenances thereto now existing or hereafter constructed shall be maintained by the owner of the property in a safe and sanitary condition and all devices or safeguards which are required by Chapters 15.04 through 15.28 and the rules, regulations and charges governing water and sewer service for the operation thereof shall be maintained in a good working order. The above provisions notwithstanding, the Water Department shall maintain the house connection extending from the property line to the main line sewer within the public right-of-way. (Ord. C-7173 § 17 (part), 1994: Ord. C-6521 § 1, 1988: prior code § 7570.53)

15.20.070 Existing building sewers.

The following requirements shall apply to building sewers in existence on the effective date of the ordinance codified in Chapters 15.04 through 15.28:

A. If the construction of a new building sewer is to include any portion of an existing drain to a cesspool, septic tank or other means of sewage disposal, the existing drain may be included and accepted as a part of a new building sewer if the existing drain meets all of the requirements of a new building sewer as defined in Chapter 15.04 or the rules, regulations and charges governing water and sewer service, except that the portions of the existing drain which are used and undisturbed may not be rejected for the sole reason that the materials are not new.

B. If additions are to be made to an existing building sewer, or if alterations are to be made or are made necessary by a change or use, the building sewer shall be made to conform to the requirements of Chapters 15.04 through 15.28 and the rules, regulations and charges governing water and sewer service which apply to new construction.

C. No inspection and test shall be required for the undisturbed existing portion of a building sewer constructed and inspected under a permit issued by the General Manager or constructed and inspected pursuant to a permit issued in accordance with other applicable laws and ordinances in effect at the time of construction. (Ord. C-7173 § 17 (part), 1994: prior code § 7570.54)

15.20.080 Backflow prevention.

If an existing plumbing outlet has been installed or located or if a plumbing outlet is to be installed or located at an elevation which, in the opinion of the City Superintendent of Building and Safety, may cause the fixture to overflow by reason of backflow from a main line sewer, an approved type of backwater trap or sewer valve shall be installed between the outlet and the public sewer in such manner as to prevent sewage from flowing back or backing up into the outlet or plumbing fixture. The trap or valve shall be installed in the basement or in a box or manhole of concrete or cast iron or other material approved by the City Superintendent of Building and Safety and shall be readily accessible at all times. The trap or valve shall be placed only in the drain serving the fixture or fixtures that may be subject to overflow and no sewage from fixtures not subject to overflow shall pass through the trap or valve. (Ord. C-7173 § 17 (part), 1994: prior code § 7570.55)

15.20.090 Backflow noncompliance.

If the property owner fails to install and maintain a backwater trap or valve in good working condition when required to do so under Chapters 15.04 through 15.28 or the rules, regulations and charges governing water and sewer service, the City Superintendent of Building and Safety may order and require the plumbing fixture to be dis-

connected and removed and the outlet be plugged or capped. (Ord. C-7173 § 17 (part), 1994: prior code § 7570.56)

15.20.100 Septic tank abandonment.

When a septic tank or cesspool is abandoned following the installation of a building sewer, the septic tank, cesspool, or seepage hole shall be backfilled solidly with earth to the satisfaction of the City Superintendent of Building and Safety before the final approval of the building sewer. (Ord. C-7173 § 17 (part), 1994: prior code § 7570.57)

15.20.110 Dumping contents of septic tanks or cesspools.

No person shall dump the contents of any cesspool or septic tank into a public sewer without first obtaining a permit from the General Manager authorizing such disposal. The General Manager may authorize the disposal of the contents of cesspools or septic tanks which do not contain harmful concentrations of industrial wastewater, oil, grease or other deleterious substances into a specified manhole or manholes. Such authorization will only be granted to persons engaged in the disposal of contents of cesspools or septic tanks. Such persons shall, upon request, furnish to the General Manager a statement showing the street address of each location from which the contents or effluents are to be obtained and the location of the manhole into which the discharge is to be made. The General Manager may refuse to issue a permit to any person who fails to comply with the provisions of Chapters 15.04 through 15.28 or the rules, regulations and charges governing water and sewer service or the provisions or any permit previously issued to such person. (Ord. C-7173 § 17 (part), 1994: prior code § 7570.58)

15.20.130 Opening manhole.

No person shall open or enter, or cause to be opened or entered, any manhole in any public sewer for any purpose whatsoever unless the person has been authorized to open and enter the manhole. (Prior code § 7570.60)

15.20.140 Damaging sewers prohibited.

No person shall remove or cause to be removed, or damage or cause to be damaged, any public sewer or portion thereof, or any appurtenances thereto, or pumping plants in connection therewith, unless such person has been authorized to do so. (Prior code § 7570.61)

15.20.150 Disposal of uncontaminated water.

No person shall discharge uncontaminated cooling water, water from pools or clear wash water that is nonseptic or incapable of becoming a nuisance into a public sewer where it is possible, in the opinion of the General Manager, to dispose of such water into a stream channel, storm drain or by other means. For the purpose of this Section, "storm drain" includes a storm drain under the jurisdiction of the Los Angeles County Department of Public Works. If, in the opinion of the General Manager, no suitable means is available for the disposal of such water, on the approval of the General Manager and as permitted by Los Angeles County, the General Manager may authorize the discharge of such water into a main line sewer if the main line sewer has sufficient capacity to handle the discharge. (Ord. C-7173 § 18 (part), 1994: prior code § 7570.66)

15.20.160 Cellar and shower drainage.

Any cellar drain or any drain from a shower in a basement or yard shall be protected so as to prevent the admission of sand, detritus, rain water or surface drainage into the sewer. When necessary, in the opinion of the City Superintendent of Building and Safety, such person shall install an interceptor constructed in accordance with the provisions of Chapters 15.04 through 15.28 and the rules, regulations and charges governing water and sewer service. (Ord. C-7173 § 18 (part), 1994: prior code § 7570.67)

15.20.170 Maintenance of facilities.

The requirements contained in Chapters 15.04 through 15.28 and the rules, regulations and charges governing water and sewer service covering the maintenance of sanitary sewage treatment plants,

sewage pumping plants, industrial wastewater pretreatment plants, interceptors, or other appurtenances shall apply to all such facilities now existing or hereafter constructed. All such facilities shall be maintained by the owners thereof in a safe and sanitary condition and all devices or safeguards which are required by Chapters 15.04 through 15.28 and the rules, regulations and charges governing water and sewer service for the operation of such facilities shall be maintained in good working order. This Section shall not be construed as permitting the removal or failure to maintain of any device or safeguards or existing facilities unless authorized in writing by the General Manager. (Ord. C-7173 § 18 (part), 1994: prior code § 7570.68)

15.20.180 Inspection.

The General Manager may inspect as often as deemed necessary every sewage pumping plant, private sewage disposal system, sewer lateral, dilution basin, neutralization basin, backwater trap or valve, or other similar appurtenances, for the purpose of ascertaining whether such facilities are maintained and operated in accordance with the provisions of Chapters 15.04 through 15.28 and the rules, regulations and charges governing water and sewer service. All persons shall permit the General Manager to have access to all such facilities at all reasonable times. No object, whether a temporary or permanent structure, nor any object which is difficult to remove, shall be placed in such a position so as to interfere with the ready and easy access to any such facility. Any such obstruction, on the request of the General Manager, shall be immediately removed at no expense to the Water Department or the City and shall not be replaced. (Ord. C-7173 § 18 (part), 1994: prior code § 7570.69)

15.20.200 Exceptions authorized.

If the City Superintendent of Building and Safety should determine that a literal compliance with the provisions of Chapter 15.20 is impossible or impracticable because of peculiar conditions in no way the fault of the person requesting such exception, and that the purposes of Chapter 15.20 may be accomplished and public safety secured by an alternative construction or procedure, then the City Superintendent of Building and Safety may authorize such alternative construction or procedure. (Ord. C-7173 § 19, 1994: prior code § 7570.71)

CHAPTER 15.24 SEWERS—INSTALLATION

15.24.010 Lowering water level.

Where groundwater conditions are found to exist which will require the lowering of the water level in the installation area, the method to be used in lowering the water level shall be approved by the General Manager. (Ord. C-7173 § 20, 1994: prior code § 7570.72)

15.24.090 Pipe—Laying method.

All pipe shall be laid upgrade on an unyielding foundation, true to line and grade and with a uniform bearing under the full length of the barrel of the pipe. Bell and spigot pipe shall be laid with sockets upgrade. Suitable excavations shall be made to receive the bells or collars of the pipe. All adjustments to bring the pipe to line and grade shall be made by scraping away or filling in under the body of the pipe, and not by wedging or blocking. (Prior code § 7570.80)

15.24.100 Main line sewers—Slope.

The grade or slope of main line sewers shall be shown on the plans in feet of fall per foot or horizontal distance expressed as a decimal. Slopes used shall be divisible, without remainder, by four. For example, twenty-four ten-thousandths, four one-thousandths and six one-hundredths comply with this Section. (Prior code § 7570.81)

15.24.120 Pipe—Disturbing after joints made.

No person shall walk upon or disturb the pipe in any manner after the joints have been made. (Prior code § 7570.83)

15.24.130 Depth of lines.

A. The minimum depth of main line sewers in residential districts shall be five feet (5') and in

business districts shall be sufficient to provide a house connection depth of ten and one-half feet (10½') for areas where no groundwater is present. Minimum depth for house connections shall be four feet (4') in residential districts and ten and one-half feet (10½') in business or apartment house districts below the grade at the top of the curb or property line.

B. Where the lot to be served has a slope greater than one percent (1%), the depth for residential main line sewers shall be sufficient to provide for a house connection with a minimum depth of at least one foot (1') below the surface at any part of the lot and a grade of not less than two percent (2%).

C. Exceptions to the minimums in this Section may be made only with the approval of the General Manager. (Ord. C-7173 § 21 (part), 1994: prior code § 7570.84)

15.24.150 End structures.

End structures shall be located at least ten feet (10') upgrade from the downgrade lot line of the last lot served unless greater length is necessary to serve the property. (Prior code § 7570.86)

15.24.160 Soil conditions.

Soil conditions, particularly in areas known to have high groundwater tables, rock or filled ground shall be prospected and the results shown on the profile. (Prior code § 7570.87)

15.24.170 Benchmarks.

A system of benchmarks on United States Geodetic Survey datum and adequate to construct the work shall be noted on the profile. (Prior code § 7570.88)

15.24.180 Substructures.

All substructures which will be encountered in the construction or which will be installed as part of the improvement shall be shown and designated on the plan. Large substructures which require special treatment in the design of the sewer shall also be shown on the profile when required by the General Manager. When required, the permittee shall submit to the General Manager a statement from each utility company having substructures in the affected area, certifying that the location and size of the structures, as shown on the plans, are the same as shown on their records. (Ord. C-7173 § 21 (part), 1994: prior code § 7570.89)

15.24.190 Septic tanks, cesspools and seepage holes.

Septic tanks, cesspools and seepage holes shall be constructed in accordance with plans approved by the General Manager. (Ord. C-7173 § 21 (part), 1994: prior code § 7570.90)

15.24.200 Building sewers—Each lot.

Six (6) inch building sewer service shall be provided in the street for each lot. (Ord. C- 7173 § 21 (part), 1994: prior code § 7570.91)

15.24.210 Building sewers—Grade.

All building sewers shall be laid on straight lines and uniform grades between cleanouts located as specified in this Chapter and the rules, regulations and charges governing water and sewer service. Minimum grades of building sewer shall be one-quarter inch (¼") per foot except where otherwise permitted in writing by the General Manager. (Ord. C-7173 § 21 (part), 1994: prior code § 7570.92)

15.24.220 House connection grade.

The alignment and grade of a house connection shall be straight from the public sewer to the street property line and shall have a fall of not less than one (1) foot in fifty feet (50') towards the public sewer, except where otherwise approved in writing by the General Manager. (Ord. C-7173 § 21 (part), 1994: prior code § 7570.93)

15.24.230 Vitrified clay pipe—Placement.

Vitrified clay piping shall not be placed closer than two feet (2') to the exterior wall of any building or foundation or closer than twelve inches (12") to the surface of the ground at any point in its course. (Prior code § 7570.94)

15.24.240 Reducers.

A six (6) inch by four (4) inch reducer shall be inserted in the house connection just inside the property line when the pipe size is changed from six (6) inch to four (4) inch. A six (6) inch by four (4) inch by four (4) inch reducer tee may be used at this location to serve as reducer, test tee and cleanout. (Ord. C-7173 § 22 (part), 1994: prior code § 7570.95)

15.24.250 Cleanouts.

A. Cleanouts in a house connection shall be made by inserting either a tee or wye branch or a two-way cleanout fitting in the line with the cleanout hub placed vertically above the flow line of the pipe. A cap of the same material shall be tightly sealed in the bell of the access or vertical outlet.

B. Cleanouts shall be placed in every house connection at the junction with the soil pipe at the building, at the junction with main line sewer, at the junction of the house connection and building sewer at the property line, at all changes in alignment or grade, and at intervals of not to exceed fifty feet (50') in straight runs. Cleanouts in straight runs longer than fifty feet (50') shall be uniformly spaced. (Ord. C-7173 § 22 (part), 1994: prior code § 7570.96)

15.24.260 Direct connection with trunk sewer.

Whenever a house connection is connected directly to a main line sewer, either through a wye, tee, saddle, or manhole thereof, a side hand hole trap or running trap shall be inserted at the point or points of connection to the house plumbing two feet (2') outside the building, and the required tee cleanout shall be inserted in the line just below the trap. (Ord. C-7173 § 22 (part), 1994: prior code § 7570.97)

15.24.270 House connections—Straight route.

All house connections shall be laid in the most direct feasible route, free of pinched joints or unnecessary bends and fittings, and on a straight line and uniform grade between cleanouts located as specified herein. (Ord. C-7173 § 22 (part), 1994: prior code § 7570.98)

15.24.280 House connections—Testing.

A. On completion, every house connection and every portion thereof shall be subjected to a water pressure test by completely filling with water every portion of the house connection from the lowest to the highest portion thereof.

B. No house connection shall be approved if any portion thereof, including any fitting, material, work or construction fails to withstand the test without leaking at any point, or does not comply with the provisions of Chapters 15.04 through 15.28 and the rules, regulations and charges governing water and sewer service. (Ord. C-7173 § 22 (part), 1994: prior code § 7570.99)

15.24.290 Testing in sections.

If by reason of excessive fall in any such house connection the pressure in a static water pressure test exceeds four (4) pounds per square inch, then the sewer may be tested in sections of such length that no such section nor any portion thereof will be subjected to pressure greater than four (4) pounds per square inch. (Ord. C-7173 § 22 (part), 1994: prior code § 7570.100)

15.24.300 Cemented joints.

In the event that any joints of any house connection are cemented with Portland cement mortar, no water test shall be made thereof until the expiration of not less than twenty-four (24) hours after the joints are made. (Ord. C-7173 § 22 (part), 1994: prior code § 7570.101)

CHAPTER 15.28 SEWERS—INSPECTION AND ENFORCEMENT

15.28.010 Right of entry.

The City Engineer and the General Manager or other authorized representatives of either the City or the Water Department shall have the right of entry into and on any property, structure or premises served by any public or private sewer, cesspool, septic tank, or appurtenance thereon for

the purpose of examining and inspecting the construction or condition of same, and every person owning, controlling, or otherwise occupying the property, structure or premises shall permit the entry and give such aid as may be necessary or required for the examination and inspection. (Ord. C-7173 § 23, 1994: prior code § 7570.39)

CHAPTER 15.32 WATER AND ELECTRODE WELLS

15.32.010 Purpose.

It is declared that it is the purpose of this Chapter to provide for the construction, repair and reconstruction of wells to the end that the groundwater of the City will not be impaired in quality and that water obtained, if any, from such wells will be suitable for the purpose for which used and will not jeopardize the health, safety, or welfare of the people of the City, and for the destruction of abandoned wells or wells found to be public nuisances to the end that such wells will not impair the quality of groundwater or otherwise jeopardize the health, safety or welfare of the people of the City. (Prior code § 5710)

15.32.020 Definitions.

As used in this Chapter, unless the context otherwise clearly indicates, the words and phrases used in this Chapter are defined as follows:

A. "Abandoned water well" is a nonoperating well which is not maintained in conformity with Section 15.32.090.

B. "Electrode well" means any artificial excavation in excess of fifty feet (50') deep constructed by any method for the purpose of installing electrodes or electrical conductors including, but not limited to, cathodic protection wells and grounding rod wells.

C. "Nonactive water well" is one which is not in active use but which is maintained in conformance with the provisions of Section 15.32.090.

D. "Nonconforming electrode well" is one which, at the effective date of the ordinance codified in this Chapter, has not been constructed in conformance with Section 15.32.110 or is not maintained in conformance with Section 15.32.090.

E. "Water well" means any drilled, excavated, jetted, or otherwise constructed excavation which is used or intended to be used to extract water from or inject water into the underground for any purpose, or to observe or test underground waters. This definition shall not include: (A) saltwater wells, (B) wells under the jurisdiction of the State Division of Oil and Gas, except those wells converted to use as water wells, or (C) wells used for the purpose of: (1) dewatering excavation during construction, or (2) stabilizing hillsides or earth embankments. (Prior code § 5710.1)

15.32.030 Sanitary or health hazard correction.

When it is determined by the Health Officer that a sanitary defect or a health hazard exists, the Health Officer may order whatever steps he deems necessary to insure the safety of the water supply for the protection of the public health. (Prior code § 5710.2)

15.32.040 Sealing required.

All domestic water wells and springs shall be sealed with concrete or other impervious material so as to protect against surface or subsurface contamination or pollution. (Prior code § 5710.3)

15.32.050 Log of well required.

Any person who has drilled, dug, excavated, or bored a water well shall, within thirty (30) days after completion of the drilling, digging, excavating, or boring of water well, furnish the Health Officer with a complete log of the water well. This log shall include type of casting, depth of the well, number and location of perforations in the casing and any other data required by the Health Officer. A copy of the log providing such information submitted to State agencies shall satisfy this requirement. (Prior code § 5710.4)

15.32.060 Location near pollution source prohibited.

It is unlawful for any person to drill, dig, excavate, or bore any water well in any location in

which sources of pollution or contamination are known to exist at the location whereby the water may become contaminated or polluted when the well is properly constructed and maintained. (Prior code § 5710.5)

15.32.070 Distance from sewage disposal or animals.

It is unlawful for a person to drill, dig, excavate or bore a water well within one hundred feet (100') of a seepage pit or cesspool, within fifty feet (50') of a sewage disposal field, a private or public sewer, privy, or place where animals or fowl are kept. Where special hazards are involved, the distance required may be increased or special construction required as may be directed by the Health Officer. Where perforations or screens are located at or over one hundred feet (100') below the ground surface and where sealed and maintained in accordance with Section 15.32.090 or in such other circumstances as he determines lesser distances will not subject the water to contamination or pollution, the Health Officer may authorize lesser distances than those specified in this Section. It is also unlawful for any person to locate or maintain any seepage pit or cesspool within one hundred feet (100'), any sewage disposal field, a private or public sewer, privy, or place where animals or fowl are kept within fifty feet (50'), of any water well. (Prior code § 5710.6)

15.32.080 Flood protection.

It is unlawful for a person to drill, dig, excavate or bore a water well in any location which is subject to flooding or inundation, unless it is protected from flooding or inundation and the location and method of protection approved by the Health Officer. (Prior code § 5710.7)

15.32.090 Protection from surface contamination.

All water wells and electrode wells shall be kept sealed and maintained in a manner that will prevent the entrance of pump leakage, surface drainage, or any other contamination or pollution into the well or the aquifer, except that nonconforming electrode wells need not comply with this Section until such time as the electrode is expended, or the well is reconstructed, or the well is no longer being used for its intended purpose, unless, in the judgment of the Health Officer, such exception constitutes a threat to the quality of an aquifer. (Prior code § 5710.8)

15.32.100 Water well—Construction.

A. All water wells hereafter drilled, dug, or bored, shall have a durable, watertight casing which shall extend to a depth that will exclude contamination or pollution by surface drainage and undesirable groundwater and extend at least eighteen inches (18") above the surrounding natural ground level at the well site after drilling and until the pump is permanently mounted.

B. All gravel-packed wells shall have an outside water-tight casing meeting the requirements of Subsection A of this Section. The top of the space between the outer and inner casings shall be closed or sealed to exclude surface drainage. The space between the outer casing and the drill hole shall be sealed as required by Section 15.32.040. When an additional pipe is provided for a gravel chute, the top thereof shall extend above the floor or ground level and be fitted with a tight cap or lid unless in a locked room or an enclosure which is locked, bolted or screwed on tightly. (Prior code § 5710.9)

15.32.110 Electrode well—Construction.

All electrode wells hereafter constructed shall be constructed to the satisfaction of the Health Officer in such a manner as to exclude contamination or pollution of any usable underground water. (Prior code § 5710.10)

15.32.120 Surface structures.

All water wells hereafter drilled, dug, excavated, or bored, shall be provided with:

A. A watertight reinforced concrete slab of a minimum thickness of six inches (6") which shall extend horizontally at least three feet (3') from the well casing in all directions. The concrete slab shall adequately slope so as to drain water away from

the well casing. The top surface of the slab at its outer edge shall be at least four inches (4") above the surrounding ground level. This slab need not be provided, or the size and method of construction thereof may be modified, when the protection intended by this requirement or the exception of Subsection D of this Section is provided by an alternate method approved by the Health Officer.

B. For pumps or pump motors installed above the well casing, the pump or motor shall be mounted on a concrete pedestal constructed around the well casing and sealed thereto, the top of which is at least eight inches (8") above the finished grade at the well site and at least four inches (4") above the slab surrounding such well.

C. The pedestal, slab (and curtain wall, if required to protect an existing well) shall be poured monolithically or otherwise constructed as approved by the Health Officer to effectively prevent leakage between the pedestal and the slab.

D. Exceptions: Means or methods other than those specified in Subsections B and C of this Section may be used to provide the required protection when the Health Officer determines such alternates are necessary and that they provide equivalent protection. A submersible type pump may be installed with subsurface discharge and access when all subsurface entrances to the well or casing, other than into the aquifer, are effectively sealed, the enclosure is designed and constructed to exclude surface water or drainage, the area around the casing is provided with effective drainage and other protective features are provided which the Health Officer determines will effectively prevent contamination or pollution from entering the well or the aquifer. (Prior code § 5710.11)

15.32.130 Disinfection of water.

All domestic water wells shall be provided with a pipe or other effective means through which chlorine or other disinfecting agents may be introduced directly into the well. The pipe, if provided, shall be extended to a height equal to the pump pedestal or at least eight inches (8") above the finished grade, shall be kept sealed and shall be provided with a threaded or equivalently secure cap. Equivalent protection for excluding contamination from the well shall be provided for subsurface pump discharge installations. If an air relief vent is used, it shall terminate downward and be screened and protected against the possibility of contaminating material entering the vent. (Prior code § 5710.12)

15.32.140 Permit—Required.

No person shall drill, dig, bore, deepen or excavate any well, or destroy an existing well, without first making application and securing a permit from the Health Officer. The application shall be made on a form prepared by the Health Officer, which shall include the location of the proposed or existing well, the type of casing, the manner of sealing and any other data required by the Health Officer. (Prior code § 5710.13)

15.32.150 Reconstruction or conversion.

Any person intending to convert any industrial, oil or irrigation well for use as a domestic water well shall first apply and secure a permit from the Health Officer. (Prior code § 5710.14)

15.32.160 Permit—Application investigation.

Upon receipt of an application the Health Officer shall make an investigation. If the applicant has complied with all applicable laws and regulations and the proposed well location will comply with this Chapter, and the drilling, digging, boring, deepening, excavating, converting, destruction or design of the well will not create a condition which in the opinion of the Health Officer can pollute or contaminate the underground water or the water produced by the well, the Health Officer shall issue the permit. (Prior code § 5710.15)

15.32.170 Permit—One location—Suspension or revocation.

A permit shall be valid only for the location described on the permit. Construction, reconstruction or destruction of a well shall be carried out in compliance with all applicable regulations and requirements of the Health Officer and with all ordinances and laws of the County and of the

State and shall comply with the terms and conditions specified in the permit. If any of such conditions, regulations, ordinances or laws are not complied with, the Health Officer may suspend or revoke the permit by mailing or personally serving written notice of suspension or revocation upon the applicant. (Prior code § 5710.16)

15.32.180 Permit—Appeal hearing.

Any person whose application for a permit has been denied, or whose permit has been suspended or revoked, may petition the Health Officer for a hearing. The petition shall be in writing, signed by the applicant, and shall set forth in detail the facts and reasons upon which his petition is based. The time limit within which the petition must be filed is twenty (20) business days following the date on which the notice of denial, suspension or revocation was mailed to the applicant. Notice of the time and place of the hearing shall be given to the applicant not less than five (5) business days prior to the hearing, either by registered mail or in the manner required for the service of summons in civil actions. At the time and place set for the hearing, the Health Officer will give the applicant and other interested persons an adequate opportunity to present any relevant facts. The Health Officer may place any person involved in the matter, including the applicant, under oath. The Health Officer may, when he deems it necessary, continue any hearing by setting a new time and place and by giving notice to the applicant of the action. At the close of the hearing, or at any time within ten (10) days thereafter, the Health Officer will order such disposition or the application or permit as he has determined to be proper and will make the disposition known to the applicant. (Prior code § 5710.17.

15.32.190 Water well—Destruction.

All water wells, unless made to comply with Sections 15.32.040 and 15.32.090, shall be destroyed to the satisfaction of the Health Officer by filling with cement grout, puddled clay or similar impervious material, as approved by the Health Officer, to thoroughly seal the well, including all voids, annular spaces, gravel envelopes or other spaces, as necessary to protect the aquifer. (Prior code § 5710.18)

15.32.200 Electrode well—Destruction.

All electrode wells, unless in compliance with Section 15.32.090, shall be destroyed to the satisfaction of the Health Officer in such a manner as to exclude contamination or pollution of any usable underground water. (Prior code § 5710.19)

15.32.210 Domestic water wells—Conformance of existing wells required.

All water wells used to supply domestic water shall conform to the requirements of a new water well, except the Health Officer may accept substitute methods when he finds it is impractical to fully meet such requirements and if he determines the substitute methods satisfactorily accomplish the intended purpose. Existing wells shall meet requirements for new wells regarding protection from flooding or contamination or such protection which the Health Officer determines to be equivalent. (Prior code § 5710.20)

15.32.220 Domestic water wells—Bacteriological standards.

Every new, repaired or reconstructed domestic water well, after completion of construction, repair or reconstruction, and before being placed in service, shall be thoroughly cleaned of all foreign substances. The well, including the gravel used in gravel packed wells, the pump and all portions of equipment coming in contact with well water shall be disinfected with a solution containing at least fifty (50) parts per million available chlorine, which shall remain in the well for a period of at least twenty-four (24) hours, or by an equivalent method of disinfection satisfactory to the Health Officer, and such procedure shall be repeated, as necessary, to produce water meeting bacteriological standards as set forth in the U.S. Public Health Service drinking water standards. No well water from a new or reconstructed well shall be used for domestic purposes until the water

meets such bacteriological requirements. (Prior code § 5710.21)

15.32.230 Pump discharge line elevation.

All pump discharge lines shall leave the well at a higher elevation than the top of the casing. (Prior code § 5710.22)

15.32.240 Rules establishment.

The Health Officer shall prescribe rules, regulations and requirements not in conflict with the general law, as prescribed in the City Charter, for implementation and enforcement of this Chapter. (Prior code § 5710.23)

CHAPTER 15.34 WIRELESS TELECOMMUNICATIONS FACILITIES IN THE PUBLIC RIGHTS-OF-WAY

15.34.010 Purpose and objectives.

The purpose of this Chapter is to regulate the establishment and operation of wireless telecommunications facilities within the public right-of-way in the City of Long Beach, consistent with the General Plan, and with the intent to:

A. Allow for the provision of wireless communications services adequate to serve the public′s interest within the City;

B. Minimize the negative impacts of wireless telecommunications facilities, establish a fair and efficient process for review and approval of applications, assure an integrated, comprehensive review of environmental impacts of such facilities in the context of other uses and users in the public right-of-way, and protect the health, safety and welfare of the City of Long Beach;

C. Strongly encourage the location of wireless telecommunications facilities in those areas of the City where the adverse aesthetic impact on the community is minimal;

D. Promote the public health, safety, convenience, and general welfare of the City′s residents, and to protect historical resources, property values and the aesthetic appearance of the City of Long Beach;

E. Strongly encourage wireless telecommunications providers to configure all facilities in such a way that minimizes displeasing aesthetics through careful design, siting, landscaping, screening, and innovative camouflaging techniques;

F. Provide a uniform and comprehensive set of standards for the development, siting, installation, and operation of wireless telecommunications facilities in the limited physical resources and capacity of the available public right-of-way of the City of Long Beach in such a manner to not unreasonably discriminate, and to be competitively neutral, and non-exclusive as to the extent required under applicable law;

G. Encourage open competition and the provision of advanced and high quality telecommunications services on the widest possible basis to the businesses, institutions, and residents of the City;

H. Encourage economic development while preserving aesthetic and other community values and preventing proliferation of above ground wireless telecommunication equipment; and

I. Conform to all applicable federal and state laws. (ORD-18-0012 § 2, 2018)

15.34.020 Definitions.

In addition to all those terms defined in Chapter 21.15 of the zoning regulations, the following terms shall have the meanings set forth below, for the purposes of this Chapter:

A. ″Abandoned.″ Notwithstanding the definition of ″abandoned″ in Section 21.15.030, a wireless telecommunications facility use shall be considered abandoned if it is not in use for two (2) consecutive months.

B. ″Adjacent″ means on the same side of the street and in front of the building or the next building on either side, when used in connection with a national historic landmark, California landmark, City landmark as defined in Chapter 2.63, or cultural resource as defined in Chapter 2.63; and in front of and on the same side of the street, when used in connection with a City park or open space.

C. "Applicable Law" means all applicable federal, state, and City laws, ordinances, codes, rules, regulations and orders, as the same may be amended or adopted from time to time.

D. "Base Station" shall have the meaning as determined by the Director of Public Works in an order or regulation, provided that the Director of Public Works' definition shall be consistent with the definition of that term: (a) as it is used in Section 6409(a) of the Middle Class Tax Relief and Job Creation Act of 2012, codified at 47 U.S.C. § 1455(a) as may be amended from time to time; and (b) as it is defined by the FCC in any decision addressing that section or any regulation implementing that section, including without limitation the FCC Report and Order entitled "In the Matter of Acceleration of Broadband Deployment by Improving Wireless Facilities Siting Policies; Acceleration of Broadband Deployment: Expanding the Reach and Reducing the Cost of Broadband Deployment by Improving Policies Regarding Public Rights of Way and Wireless Facilities Siting; 2012 Biennial Review of Telecommunications Regulations," (FCC Report and Order No. 14-153).

E. "Business Day" means a day that Long Beach City Hall is open to conduct public business.

F. "Coastal Zone Protected Location" means a proposed location for a wireless telecommunications facility in the public right-of-way that is within or adjacent to a designated coastal zone (as that term is defined in Section 21.15.530).

G. "Coastal Zone Protected Location Compatibility Standard" means whether a wireless telecommunications facility that is proposed to be located in a Coastal Zone Protected Location would comply with all applicable requirements and standards applicable to the installation of public infrastructure within the coastal zone.

H. "Co-location" means the placement or installation of wireless telecommunications facilities, including antennas and related equipment onto an existing wireless telecommunications facility in the case of monopoles, or onto the same building in the case of roof/building-mounted sites or placement onto an existing pole or structure with existing wireless telecommunication facility in the public right-of-way.

I. "Co-location Facility" means a wireless telecommunications facility that has been co-located consistent with the meaning of "co-location" as defined above. It does not include the initial installation of a new wireless telecommunications facility where previously there was none, nor the construction of an additional monopole on a site with an existing monopole.

J. "Eligible Facilities Request" shall have the meaning as determined by the Director of Public Works in an order or regulation, provided that the Director of Public Works' definition shall be consistent with the definition of that term: (a) as it is used in Section 6409(a) of the Middle Class Tax Relief and Job Creation Act of 2012, codified at 47 U.S.C. § 1455(a) as may be amended from time to time; and (b) as it is defined by the FCC in any decision addressing that section or any regulation implementing that section.

K. "FCC" means the Federal Communications Commission.

L. "Modification Permit" means a Wireless Right-of-Way Facility Permit issued by the Department of Public Works pursuant to Subsection 15.34.030.S below, authorizing a permittee to modify equipment installed on a utility pole or street light pole by the permittee pursuant to a Wireless Right-of-Way Facility Permit.

M. "Permittee" means a person issued a permit pursuant to this Chapter 15.34.

N. "Person" means any individual, group, company, partnership, association, joint stock company, trust, corporation, society, syndicate, club, business, or governmental entity. "Person" shall not include the City of Long Beach.

O. "Phasing Plan" means a schedule in a form and with timing that is reasonable and acceptable to the Director of Public Works, setting forth milestones for completion of the construction and inspection of a wireless telecommunications facility, compliance with which shall be a condition of approval on each Wireless Right-of-Way Facility Permit.

P. "Planning Protected Location" means any of the following proposed locations for a wireless telecommunications facility:

1. On an historic, historically or architecturally significant, decorative, or specially designed street light pole located in the public right-of-way;

2. On a utility pole or street light pole that is on a public right-of-way that is within a national historic landmark district, listed or eligible national register historic district, listed or eligible California register historic district, listed or eligible City landmark, or listed or eligible City landmark district, as more specifically described and cataloged in materials prepared and maintained pursuant to Chapter 2.63;

3. On a utility pole or street light pole that is on a public right-of-way that is adjacent to a national historic landmark, California landmark, or City landmark, as more specifically described and cataloged in materials prepared and maintained pursuant to Chapter 2.63;

4. On a utility pole or street light pole that is on a public right-of-way that the General Plan has designated as being most significant to City pattern, defining City form, or having an important street view for orientation; or

5. On a utility pole or street light pole that is on a public right-of-way that the General Plan has designated as having views that are rated "excellent" or "good."

Q. "Planning Protected Location Compatibility Standard" means whether an applicant for a Wireless Right-of-Way Facility Permit demonstrates that a proposed wireless telecommunications facility would be compatible with any of the Planning Protected Locations as follows:

1. For a historic, historically or architecturally significant, decorative, or specially designed street light pole, the applicable standard is whether a proposed wireless telecommunications facility would significantly degrade the aesthetic attributes that distinguish the street light pole as historic, historically significant, architecturally significant, decorative, or specially designed.

2. For public right-of-way that is within a national historic landmark district, listed or eligible national register historic district, listed or eligible California register historic district, listed or eligible City landmark, or listed or eligible City landmark district, the applicable standard is whether a proposed wireless telecommunications facility would significantly degrade the aesthetic attributes that were the basis for the special designation of the district.

3. For a utility pole or street light pole that is adjacent to a national historic landmark, California landmark, or City landmark, the applicable standard is whether a proposed wireless telecommunications facility would significantly degrade the aesthetic attributes that were the basis for the special designation of the building.

4. For public right-of-way that the General Plan has designated as being most significant to City pattern, defining City form, or having an important street view for orientation, the applicable standard is whether a proposed wireless telecommunications facility would significantly degrade the aesthetic attributes that were the basis for the designation of the street for special protection under the General Plan.

5. For public right-of-way that the General Plan has designated as having views that are rated "excellent" or "good," the applicable standard is whether a proposed wireless telecommunications facility would significantly impair the views of any of the important buildings, landmarks, open spaces, or parks that were the basis for the designation of the street as a view street.

R. "Public Health Compliance Standard" means whether: (a) any potential human exposure to radio frequency emissions from a proposed wireless telecommunications facility described in an application is within the FCC guidelines; and (b) noise at any time of the day or night from the proposed wireless telecommunications facility described in an application is not greater than forty-five (45) dBA as measured at a distance three (3) feet from any residential building facade.

S. "Public right-of-way" means any public highway, street, alley, sidewalk, parkway, parking lot, and all extensions or additions thereto which is either owned, operated, or controlled by the

City, or is subject to an easement or dedication to the City, or is a privately-owned area within City's jurisdiction which is not yet dedicated, but is designated as a proposed public right-of-way on a tentative subdivision map approved by the City.

T. "Replace" means to remove previously permitted equipment and install new equipment at a permitted wireless telecommunications facility that is identical or smaller in size and weight, equal or fewer in quantity, and identical in color when compared to the previously permitted equipment; provided, however, that an increase in size or weight to the extent required by applicable state or federal regulation may be permitted.

U. "Residential/Institutional Planned Development (PD) District" means the following Planned Development Districts within the City of Long Beach: PD-5 (Ocean Boulevard), PD-10 (Willmore City), PD-11 (Rancho Estates), PD-17 (Alamitos Land), PD-20 (All Souls), PD-25 (Atlantic Avenue), all RP residential planned unit development districts, as well as any future PDs and/or RPs designated as such by the City.

V. "Street Light Pole" means a pole used principally or solely for street lighting and which is located in the public rights-of-way.

W. "Substantially Change the Physical Dimensions" shall have the meaning as determined by the Director of Public Works in an order or regulation, provided that the Director of Public Works' definition shall be consistent with the definition of that term: (a) as it is used in Section 6409(a) of the Middle Class Tax Relief and Job Creation Act of 2012, codified at 47 U.S.C. § 1455(a) as may be amended from time to time; and (b) as it is defined by the FCC in any decision addressing that section or any regulation implementing that section.

X. "Tier A Compatibility Standard" means that an applicant for a wireless telecommunications facility on a public right-of-way that is within an Unprotected Location has demonstrated that the proposed wireless telecommunications facility would not significantly detract from any of the defining characteristics of the neighborhood.

Y. "Tier A Wireless Telecommunications Facility" means a wireless telecommunications facility where the proposed location for the facility is in an Unprotected Location.

Z. "Tier B Compatibility Standard" means: (i) in the case of applications for wireless telecommunications facility within or adjacent to the public right-of-way in a Planning Protected Location, a wireless telecommunications facility that complies with the Planning Protected Location Compatibility Standard, (ii) in the case of applications for wireless telecommunications facility within or adjacent to the public right-of-way in a Coastal Zone Protected Location, a wireless telecommunications facility that complies with the Coastal Zone Protected Location Compatibility Standard, and (iii) in the case of applications for wireless telecommunications facility within or adjacent to the public right-of-way in a Zoning Protected Location, a wireless telecommunications facility that complies with the Zoning Protected Location Compatibility Standard. In addition to the foregoing, for all applications for wireless telecommunications facilities within or adjacent to Planning Protected Locations, Coastal Zone Protected Locations, and/or Zoning Protected Locations, satisfaction of the Tier B Compatibility Standard requires an affirmative demonstration that the proposed wireless telecommunications facility would not significantly detract from any of the defining characteristics of the Planning Protected Location, Coastal Zone Protected Location, or Zoning Protected Location.

AA. "Tier B Wireless Telecommunications Facility" means a wireless telecommunications facility where the proposed location for the facility is in a Planning Protected Location, Coastal Zone Protected Location, or Zoning Protected Location.

BB. "Transmission Equipment" shall have the meaning as determined by the Director of Public Works in an order or regulation, provided that the Director of Public Works' definition shall be consistent with the definition of that term: (a) as it is used in Section 6409(a) of the Middle Class Tax Relief and Job Creation Act of 2012, codified at 47 U.S.C. § 1455(a) as may be amended from time to time; and (b) as it is defined by the FCC in any decision addressing that section or any regulation implementing that section.

CC. "Unprotected Location" means a proposed location for a wireless telecommunications

facility that is not located within or adjacent to a Planning Protected Location, a Coastal Zone Protected Location, and/or a Zoning Protected Location.

DD. "Utility Pole" means any pole or tower owned by any utility company that is located in the public right-of-way necessary for the distribution of electrical or other utility services regulated by the California Public Utilities Commission, as well as guyed poles. This does not include towers for high-voltage electrical power transmission between generating plants and electrical substations.

EE. "Wireless Telecommunications Facility" means equipment installed for the purpose of providing wireless transmission of voice, data, images, or other information including but not limited to, cellular telephone service, personal communications services, and paging services, consisting of equipment, antennas, and network components such as towers, utility poles, transmitters, base stations, conduits, pull boxes, electrical meters, and emergency power systems. "Wireless telecommunications facility" does not include radio or television broadcast facilities, nor radio communications systems for government or emergency services agencies.

FF. "Zoning Protected Location" means on a utility pole or street light pole that is on a public right-of-way that is within a residential or a residential/institutional planned development (PD) district.

GG. "Zoning Protected Location Compatibility Standard" means that an applicant for a wireless telecommunications facility on a public right-of-way that is within a Zoning Protected Location has demonstrated that the proposed wireless telecommunications facility would not significantly detract from any of the defining characteristics of the residential or a residential/institutional planned development (PD) district. (ORD-18-0012 § 2, 2018)

15.34.030 Requirements and standards for wireless telecommunications facilities in the public right-of-way.

A. Permit Required. Any person seeking to construct, install, or maintain a wireless telecommunications facility in, on, under, or above the public right-of-way shall obtain a Wireless Right-of-Way Facility Permit pursuant to the requirements of this Chapter prior to installing such wireless telecommunications facility.

B. Permit requirements for wireless telecommunications facilities in the public right-of-way.

1. Minimum Permit Requirements.

a. The Department of Public Works shall not issue a Wireless Right-of-Way Facility Permit if the permit application does not comply with all of the applicable requirements of this Section 15.34.030.

b. The Department of Public Works shall require an applicant for a Wireless Right-of-Way Facility Permit to demonstrate to the satisfaction of the Department of Public Works that:

(i) Other Permits. The applicant has obtained all appropriate permits (e.g., encroachment and traffic control permits) from the Department of Public Works, together with all other applicable permits and approvals from the City and other governmental agencies (e.g., approvals and permits required under the City's local coastal program (Chapter 21.25), and approvals and permits required under the City's cultural heritage procedures (Chapter 2.63)).

(ii) Authorization to Install. If the facility is to be installed on an existing utility pole or street light pole, the applicant shall provide proof that either (a) the pole is either owned and controlled by the Joint Pole Commission and that the applicant is a member of the Joint Pole Commission with attachment rights, or (b) the owner of the pole has authorized the installation.

(iii) California Environmental Quality Act Compliance. The applicant has obtained any approvals that may be required under the California Environmental Quality Act (California Public Resources Code Section 21000 et seq.) to construct, install, and maintain the proposed wireless telecommunications facility.

(iv) California Public Utilities Commission Authorizations. The applicant has obtained any

necessary certificate of public convenience and necessity issued by the California Public Utilities Commission.

(v) Operational Interference with Public Rights-of-Way. No part of a wireless telecommunication facility shall alter vehicular circulation or parking within the public right-of-way, nor shall it impede vehicular and/or pedestrian access or visibility along any public right-of-way. No permittee shall locate or maintain wireless telecommunication facilities to unreasonably interfere with the use of City property or the public right-of-way by the City, by the general public or by other persons authorized to use or be present in or upon the public right-of-way. Unreasonable interference includes disruption to vehicular or pedestrian traffic on City property or the public right-of-way, interference with public utilities, and any such other activities that will present a hazard to public health, safety or welfare when alternative methods of construction would result in less disruption. All such wireless telecommunications facilities shall be moved by the permittee, at the permittee's cost, temporarily or permanently, as determined by the Director of Public Works.

(vi) Aesthetic Impacts. All wireless telecommunication facilities shall be designed and located to eliminate or substantially reduce their visual and aesthetic impacts upon the surrounding public rights-of-way and public vantage points. To accomplish this goal, all wireless telecommunication equipment shall be developed with the intent of locating and designing such facilities in the following manner and order of preference (from top to bottom). In instances where a facility is proposed for installation at a location or in a manner that is not the highest preference for each of the following categories, the applicant shall make a factual showing that all higher preferences are infeasible:

1) Antenna preferences:

(i) On an existing street light pole;

(ii) On a replacement street light pole;

(iii) On an existing structure other than a street light pole or utility pole in the public-right-of-way;

(iv) On a new structure other than a street light pole or utility pole in the public right-of-way (e.g., wireless telecommunication kiosk);

(v) On an existing non-wood utility pole;

(vi) On a new non-wood utility pole;

(vii) On an existing wood utility pole.

2) Equipment preferences (for all appurtenant equipment, including, but not limited to, radio units, power supplies, voltage converters, and electrical service connections and meters):

(i) When bundled in an all-in-one equipment cabinet with the antenna(s), provided, however, that the size of the cabinet shall be minimized to the satisfaction of the Director of Public Works;

(ii) Within a below-grade equipment vault, or on a street light pole or utility pole that does not place new cabinets or other above ground furniture in the public right-of-way, provided, however, that the size of the boxes on the pole shall be minimized to the satisfaction of the Director of Public Works and that the power supply equipment is undergrounded;

(iii) Attached to existing power source in an existing utility box;

(iv) Enclosed at the base of the pole on which the antenna(s) is/are proposed for installation;

(v) In an existing ground-mounted (grade-level) equipment cabinet, with no expansion or additional cabinets to be added;

(vi) Within a new equipment enclosure mounted at grade.

3) Site location preferences:

(i) Within the public right-of-way, not in a center median, and not requiring the removal of existing parkway trees, reduction of the size of any parkway landscape planters, and not requiring any modifications to the existing location of any infrastructure within the public right-of-way;

(ii) Within the parkway landscaping within the public right-of-way, and requiring only minor alterations to the existing parkway landscaping (including planter size) and/or infrastructure;

(iii) Within the public right-of-way in a manner that requires significant alteration to the existing public improvements and/or infrastructure.

4) Site location restrictions. In addition to the orders of preference specified in the preceding subsections, the following location prohibitions shall be applicable to all applications for installations of wireless telecommunications facilities in the public rights-of-way.

(i) All wireless telecommunication facility antennas, equipment and related infrastructure shall be prohibited in all center street medians;

(ii) In Residential Zoning Districts or Residential Planned Development Districts, only one (1) wireless telecommunications facility and associated equipment per applicant (including contractors, subcontractors, agents, or lessors to applicant or applicant's affiliate) shall be permitted within the public right-of-way within a five hundred foot (500′) radius. For all other applicants, only one (1) wireless telecommunications facility and associated equipment per applicant shall be permitted within the public right-of-way within a one hundred foot (100′) radius. The separation requirements in the preceding two sentences may be waived by the Director of Public Works upon a demonstration that the refusal to allow an additional facility within a five hundred foot (500′) or one hundred foot (100′) radius will result in the creation of a significant coverage gap for the applicant and/or that such refusal will otherwise violate an applicable state or federal law;

(iii) Wireless on strand or overhead lines shall be prohibited;

(iv) New wood poles and strand mounts may be allowed by the Director of Public Works if the applicant demonstrates that a wooden pole or strand mount is less impactful (from public safety, visual, or logistic standpoints) at a specific location.

5) Height:

(i) Antenna installations on existing City infrastructure shall not exceed the height of the existing infrastructure piece by more than five and one-half feet (5.5′) unless approved by the City Engineer or Director of Public Works after a finding is made that a greater height would promote the aesthetic or safety concerns of the City;

(ii) For antenna(s) proposed for placement on a new pole in the public right-of-way, the height to the top of the highest element shall not exceed the average height of utility poles on the same block as the subject site by more than five and one-half feet (5.5′). In cases of uncertainty, the Director of Public Works shall have the authority to determine the applicable height limit;

(iii) Pole-mounted equipment shall be a minimum of ten feet (10′) above level of sidewalk for public safety reasons.

6) Design:

(i) Any pole to be installed in the public right-of-way shall be disguised to resemble a utility pole to the maximum extent possible. All antennas shall be limited to a diameter no more than the widest part of the main pole, excluding its base. All antennas and screening devices shall be painted or finished to match the pole. All pole or equipment shall be painted or otherwise coated, per City standard, to be visually compatible with existing poles and equipment. The installation of new wood poles is not preferred;

(ii) Omnidirectional antenna units and groups of panel antennas shall be placed on the same vertical axis as the center of the pole where feasible. If not feasible, the installation shall utilize brackets and/or cross-arms that allow no more than a six-inch (6″) extension (stand-off) from the pole except when additional stand-off is required to comply with health and safety regulations such as GO-95 and OSHA;

(iii) Antenna installations on existing City infrastructure shall be placed in a manner so that the size, appearance and function of the final installation is essentially identical to the installation prior to the antenna installation taking place;

(iv) No faux or otherwise nonfunctioning street lights, decorative elements, signs, clock towers, or artificial trees or shrubs or other such nonfunctioning screening elements made to resemble other objects shall be permitted;

(v) Wireless telecommunications facility equipment located above the surface grade in the public right-of-way including, but not limited to those on certain street lights, shall consist of small

equipment components that are compatible in structure, scale, function and proportion to the poles they are mounted on. Equipment shall be painted or otherwise coated, per City standard (which may include public art), to be visually compatible with the subject pole. Underground vaults shall employ flush-to-grade access portals and vents that are heel shoe safe and slip safe; provided, however, that this restriction shall not apply in flood prone areas. Installations on City-owned or controlled public facilities shall be subject to applicable fees as approved by the City Council;

(vi) Facilities shall be designed to be as visually unobtrusive as possible. Applicant shall size antennas, cabinet equipment and other facilities to minimize visual clutter. Facilities shall be sited to avoid or minimize obstruction of views from public vantage points and otherwise minimize the negative aesthetic impacts of the public right-of-way;

(vii) All cables and conduits shall be routed through the interior of the subject pole; provided, however, that for wood poles all cables and conduits shall be mounted and routed in a manner calculated to minimize their visibility;

(viii) All cables shall be screened from public view.

(vii) Compliance With Applicable Laws. Permittee shall install and maintain permitted wireless telecommunications facilities in compliance with the requirements of the Uniform Building, National Electrical Code, City noise standards, and all other applicable codes, laws, and regulations (including without limitation, those specified in Title 21), as well as the restrictions specified in this Chapter.

(viii) Americans With Disabilities Act. The proposed wireless telecommunications facility and its location shall comply with the Americans with Disabilities Act.

(ix) Signs.

1) There shall be no advertising or signage on any portion of a wireless telecommunication facility, except that required by law and/or as may be required by the City of Long Beach.

2) Each wireless telecommunication facility shall be identified by a permanently installed plaque or marker, no larger than four inches (4″) by six inches (6″), clearly identifying the addresses, email contact information, and twenty-four (24) hour local or toll-free contact telephone numbers for a live contact person for both the permittee and the agent responsible for the maintenance of the wireless telecommunications facility. Emergency contact information shall be included for immediate response. Such information shall be updated in the event of a change in the permittee, the agency responsible for maintenance of the wireless telecommunication facility, or both.

3) Signs shall be hidden from public view when feasible. Background shall match color of equipment.

(x) Performance standards. All wireless telecommunications facilities in the public right-of-way shall be subject to the following:

1) Interference. No wireless telecommunication facility shall interfere with any emergency communication system at any time.

2) Graffiti. All graffiti on any components of the wireless telecommunications facility shall be removed promptly in accordance with City regulations. Graffiti on any facility in the public right-of-way must be removed within twenty-four (24) hours notification to the applicant of its appearance.

3) Landscaping. All landscaping required in connection with the permitting of the wireless telecommunications facility, including landscaping of the public right-of-way, shall be maintained in good, healthy condition at all times. Any dead or dying landscaping shall be promptly replaced or rehabilitated.

4) Repair of public right-of-way. The permittee or its operator shall repair, at its sole cost and expense, any damage (including, but not limited to subsidence, cracking, erosion, collapse, weakening, or loss of lateral support) to City streets, sidewalks, walks, curbs, gutters, trees, parkways, or utility lines and systems, underground utility line and systems, or sewer systems or sewer lines that results from any activities performed in con-

nection with the installation and/or maintenance of a wireless telecommunications facility by permittee. In the event permittee fails to complete said repair within the number of days stated on a written notice by the Director of Public Works, the Director shall cause said repair to be completed and shall invoice the permittee for all costs incurred by City as a result of such repair.

(i) Structural foundation must be removed when removing structures from the right-of-way;

(ii) All sidewalk panels affected by any work associated with the installation of a wireless telecommunications facility must be restored to their original condition.

5) Replacement of Equipment. During the term of a Wireless Right-of-Way Facility Permit, a permittee may replace equipment that is part of a permitted wireless telecommunications facility provided that the replacement equipment would be of the same (or smaller) size, quantity, weight, and appearance as the previously permitted equipment. The permittee shall notify the Department of Public Works prior to replacing any equipment, and shall not install the proposed equipment unless and until the Department of Public Works notifies permittee in writing that the Department has determined that the proposed replacement equipment complies with the requirements of this subsection, and until all required permits have been obtained.

6) Abandonment. The owner or operator of the wireless telecommunications facility shall notify the Department of Public Works in writing upon abandonment of the facility. The wireless telecommunications facility and all equipment associated therewith shall be removed in its entirety by the owner or operator within sixty (60) business days of a FCC or California Public Utilities Commission license or registration revocation or of facility abandonment (as defined in Subsection 15.34.020.A) or other discontinuation of use. The site shall be restored to its pre-installation condition to the satisfaction of the Director of Public Works at the expense of the facility owner or operator. Restoration shall be completed within ten (10) business days of removal of the facility. If removal and restoration is not completed within these time limits, the Director of Public Works shall be authorized to cause such removal and restoration to be completed and shall invoice the permittee for all costs incurred by City as a result of such removal.

7) Liability, Indemnification, and Defense.

(i) As a condition of a Wireless Right-of-Way Facility Permit, each permittee agrees on its behalf and on behalf of any agents, successors, or assigns to be wholly responsible for the construction, installation, and maintenance of any permitted wireless telecommunications facility. Each permittee and its agents are jointly and severally liable for all consequences of such construction, installation, and maintenance of a wireless telecommunications facility. The issuance of any Wireless Right-of-Way Facility Permit, inspection, repair suggestion, approval, or acquiescence of any person affiliated with the City shall not excuse any permittee or its agents from such responsibility or liability.

(ii) As a condition of a Wireless Right-of-Way Facility Permit, each permittee agrees on its behalf and on behalf of its agents, successors, or assigns, to indemnify, defend, protect, and hold harmless the City from and against any and all claims of any kind arising against the City as a result of the issuance of a Wireless Right-of-Way Facility Permit including, but not limited to, a claim allegedly arising directly or indirectly from the following:

(a) Any act, omission, or negligence of a permittee or its any agents, successors, or assigns while engaged in the permitting, construction, installation, or maintenance of any wireless telecommunications facility authorized by a Wireless Right-of-Way Facility Permit, or while in or about the public rights-of-way that are subject to the permit for any reason connected in any way whatsoever with the performance of the work authorized by the permit, or allegedly resulting directly or indirectly from the permitting, construction, installation, or maintenance of any wireless telecommunications facility authorized under the permit;

(b) Any accident, damage, death, or injury to any of a permittee's contractors or subcontractors, or any officers, agents, or employees of either of them, while engaged in the performance of the construction, installation, or maintenance of any wireless telecommunications facility authorized by a Wireless Right-of-Way Facility Permit, or while in or about the public right-of-way that are subject to the permit, for any reason connected with the performance of the work authorized by the permit, including from exposure to radio frequency emissions;

(c) Any accident, damage, death, or injury to any person or accident, damage, or injury to any real or personal property in, upon, or in any way allegedly connected with the construction, installation, or maintenance of any wireless telecommunications facility authorized by a Wireless Right-of-Way Facility Permit, or while in or about the public right-of-way that are subject to the permit, from any causes or claims arising at any time, including any causes or claims arising from exposure to radio frequency emissions; and

(d) Any release or discharge, or threatened release or discharge, of any hazardous material caused or allowed by a permittee or its agents about, in, on, or under the public right-of-way.

(iii) Permittee, at no cost or expense to the City, shall indemnify, defend, and hold harmless the City against any claims as set forth in Subsection 15.34.030.B.1.b.(x)7)(ii) above, regardless of the alleged negligence of City or any other party, except only for claims resulting directly from the sole negligence or willful misconduct of the City. Each permittee specifically acknowledges and agrees that it has an immediate and independent obligation to defend the City from any claims that actually or potentially fall within the indemnity provision, even if the allegations are or may be groundless, false, or fraudulent, which obligation arises at the time such claim is tendered to the permittee or its agent by the City and continues at all times thereafter. Each permittee further agrees that the City shall have a cause of action for indemnity against the permittee for any costs the City may be required to pay as a result of defending or satisfying any claims that arise from or in connection with a Wireless Right-of-Way Facility Permit, except only for claims resulting directly from the sole negligence or willful misconduct of the City. Each permittee further agrees that the indemnification obligations assumed under a Wireless Right-of-Way Facility Permit shall survive expiration of the permit or completion of installation of any wireless telecommunications facility authorized by the permit.

(iv) The Department may specify in a Wireless Right-of-Way Facility Permit such additional indemnification requirements as are necessary to protect the City from risks of liability associated with the permittee's construction, installation, and maintenance of a wireless telecommunications facility.

8) Insurance.

(i) Minimum Coverages. The Department of Public Works shall require that each permittee maintain in full force and effect, throughout the term of a Wireless Right-of-Way Facility Permit, an insurance policy or policies issued by an insurance company or companies satisfactory to the City's Risk Manager. Such policy or policies shall, at a minimum, afford insurance covering all of the permittee's operations, vehicles, and employees, as follows:

(a) Workers' compensation, in statutory amounts, with employers' liability limits not less than one million dollars ($1,000,000) each accident, injury, or illness.

(b) Commercial general liability insurance with limits not less than five million dollars ($5,000,000) each occurrence combined single limit for bodily injury and property damage, including contractual liability, personal injury, products and completed operations. This insurance shall include coverage for electric and magnetic fields (EMF) liability, products and completed operations liability.

(c) Commercial automobile liability insurance with limits not less than one million dollars ($1,000,000) each occurrence combined single limit for bodily injury and property damage, including owned, non-owned and hired auto coverage, as applicable.

(d) Contractors′ pollution liability insurance, on an occurrence form, with limits not less than one million dollars ($1,000,000) each occurrence combined single limit for bodily injury and property damage and any deductible not to exceed twenty-five thousand dollars ($25,000) each occurrence.

(e) ″All Risk″ property insurance, including debris removal, covering the full replacement value of permittee′s improvements constructed on or upon any City-owned property.

(ii) Other Insurance Requirements.

(a) Said policy or policies shall include the City and its officers and employees jointly and severally as additional insureds, shall apply as primary insurance, shall stipulate that no other insurance effected by the City will be called on to contribute to a loss covered thereunder, and shall provide for severability of interests.

(b) Said policy or policies shall provide that an act or omission of one insured, which would void or otherwise reduce coverage, shall not reduce or void the coverage as to any other insured. Said policy or policies shall afford full coverage for any claims based on acts, omissions, injury, or damage which occurred or arose, or the onset of which occurred or arose, in whole or in part, during the policy period.

(c) Said policy or policies shall be endorsed to provide thirty (30) business days advance written notice of cancellation or any material change to the Department of Public Works.

(d) Should any of the required insurance be provided under a claims-made form, a permittee shall maintain such coverage continuously throughout the term of a Wireless Right-of-Way Facility Permit, and, without lapse, for a period of three (3) years beyond the expiration or termination of the permit, to the effect that, should occurrences during the term of the permit give rise to claims made after expiration or termination of the permit, such claims shall be covered by such claims-made policies.

(e) Should any of the required insurance be provided under a form of coverage that includes a general annual aggregate limit or provides that claims investigation or legal defense costs be included in such general annual aggregate limit, such general aggregate limit shall be double the occurrence or claims limits specified in Subsection 15.34.030.B.1.b(x)8)(i) above.

(iii) Indemnity Obligation. Such insurance shall in no way relieve or decrease a permittee′s or its agent′s obligation to indemnify the City under Subsection 15.34.030.B.1.b.(x)7) above.

(iv) Proof of Insurance. Before the Department of Public Works will issue a Wireless Right-of-Way Facility Permit, a permittee shall furnish to the Department of Public Works certificates of insurance and additional insured policy endorsements with insurers that are authorized to do business in the State of California and that are satisfactory to the City evidencing all coverages set forth in Subsection 15.34.030.B.1.b.(x)8)(i) above.

(v) Self-Insurance. Where a permittee is self-insured, and such insurance is no less broad and affords no less protection to the City than the requirements specified in Subsection 15.34.030.B.1.b.(x)8)(i) above, the Department of Public Works, in consultation with the City′s Risk Manager, may accept such insurance as satisfying the requirements of Subsection 15.34.030.B.1.b.(x)8)(i) above. Evidence of such self-insurance shall be provided in the manner required by the City′s Risk Manager.

9) Bond. Each permittee, as a condition of the Wireless Right-of-Way Facility Permit, shall obtain, keep, and maintain a performance bond in an amount as determined by the City Engineer adequate to guarantee to the City the prompt, faithful and competent performance of the proposed work necessary to install the proposed telecommunication facility and restoration of the public right-of-way.

10) City Changes to Public Right-of-Way. The permittee shall modify, remove, or relocate its wireless telecommunications facility, or portion thereof, without cost or expense to the City, if and when made necessary by any street or alley reconstruction, widening, relocation or vacation, the undergrounding of utilities, or any other construc-

tion in the public right-of-way negatively impacted by the wireless telecommunications facilities as installed, to the maximum degree consistent with the regulations at the California Public Utilities Commission. Said modification, removal, or relocation of a wireless telecommunications facility shall be completed within ninety (90) business days of notification by City unless exigencies dictate a shorter period for removal or relocation. In the event a wireless telecommunications facility is not modified, removed, or relocated within said period of time, City may cause the same to be done at the sole expense of permittee. Further, in the event of an emergency, the City may modify, remove, or relocate wireless telecommunications facilities without prior notice to permittee provided permittee is notified within a reasonable period thereafter.

2. Exclusions. The Department of Public Works shall not issue a Wireless Right-of-Way Facility Permit if the applicant seeks to:

a. Install a new overhead utility line on a public right-of-way where there are presently no overhead utility facilities; or

b. Add a wireless telecommunications facility on a utility pole or street light pole for which a Wireless Right-of-Way Facility Permit has already been approved.

3. Permit Conditions. The Department of Public Works may include in a Wireless Right-of-Way Facility Permit such conditions, in addition to those already set forth in this Chapter 15.34 and other applicable law, as may be required to govern the construction, installation, or maintenance of wireless telecommunications facilities in the public rights-of-way, and to protect and benefit the public health, safety, welfare, and convenience, provided that no such conditions may concern the particular technology used for a wireless telecommunications facility.

C. Department of Public Works Orders and Regulations. The Department of Public Works may adopt such orders and regulations as it deems necessary to implement the requirements of this Chapter 15.34, or to otherwise preserve and maintain the public health, safety, welfare, and convenience, as are consistent with the requirements of this Chapter 15.34 and applicable law.

D. Application Requirements. All applicants for a Wireless Right-of-Way Facility Permit must provide at least the following information in the application (in addition to such further information as is required by an order or regulation of the Director of Public Works adopted in accordance with Subsection 15.34.030.C). Any required plans to be submitted must be stamped and signed by a qualified California licensed engineer.

1. Pole number and address;

2. A site plan illustrating the exact location and size of all proposed wireless telecommunication facility antennas, equipment and related infrastructure necessary for its operation within the public right-of-way;

3. A fully dimensioned and scaled site plan that illustrates the following information within one hundred fifty feet (150′) of the proposed wireless telecommunication facility:

a. The distances between all new and existing wireless telecommunication equipment and all other infrastructure within the public right-of-way such as, but not limited to, other existing telecommunication equipment, utility poles, street light poles, street trees, fire hydrants, bus stops, traffic signals and above and below ground utility equipment vault(s);

b. The distance and location of adjoining property lines, including County′s assessor parcel numbers (APN), and easement boundaries abutting the public right-of-way, curbs, center line tie at all streets, driveway approaches, easements, walls, existing utility substructures, and parkway trees from the wireless telecommunication facility;

c. The immediate adjacent land uses and building locations;

d. The dedicated width of the public right-of-way;

e. The location of all existing sidewalks and parkway landscape planters.

4. Prior to final inspection of the facility, provide a GIS map (electronic format) of final facility and conduit locations and the infrastructure necessary to operate the antennas;

5. A detailed photograph of the exact location of all proposed wireless telecommunication facility antennas, equipment and related infrastructure within the public right-of-way. Additional photographs shall also be provided to document the existing setting of the wireless telecommunication facility within one hundred fifty feet (150′) to the north, south, east and west of the proposed facility with a corresponding location map key documenting where each photograph was taken;

6. Propagation/coverage maps, including ″search rings″ for new installations, shall be required only if and to the extent the applicant claims that denial of its application would or could cause a ″significant coverage gap″ within the meaning of the Federal Telecommunication Act. These maps shall demonstrate the feasibility of alternative locations and/or configurations for the proposed wireless telecommunications facility. These maps may also be relevant to applicant′s demonstration that denial of an application would result in a violation of applicants rights under applicable law;

7. A study prepared by a qualified and independent engineer with expertise in radio frequency, deemed acceptable to the City, documenting that the new or modified telecommunication facility will not exceed Public Health Compliance Standard. The study shall include all proposed and existing telecommunication antennas at maximum operational capacity;

8. A narrative discussion, accompanied by evidence, explaining (if necessary) why a superior location or configuration (as established by the order of preferences in Subsection 15.34.030.B.1.b.(vi)) cannot be feasibly implemented;

9. Any additional information deemed necessary by the Director of Public Works to evaluate the proposed wireless telecommunication facility and its construction impact to the existing infrastructure and design of the public right-of-way;

10. Stamped plans and calculations by a qualified California licensed engineer approving additional load of new wireless facility equipment on the pole;

11. Plans showing how existing conduits inside or upon the pole will be separated and protected from new wireless conduits;

12. Photo simulation of proposed project;

13. Feasibility study supporting order of preference;

14. A noise study/analysis and/or manufacturer specifications demonstrating to the satisfaction of the Director of Public Works that noise from a proposed wireless telecommunications facility at any time of the day or night will not exceed forty-five (45) dBA as measured at a distance three (3) feet from any residential building facade; and

15. A phasing plan in a form and containing timing milestones for construction and inspection of the proposed wireless telecommunications facility that are acceptable to the Director of Public Works.

16. Applicants may request approvals for up to ten (10) wireless telecommunication facilities per application, so long as each of the proposed wireless telecommunications facilities is, in the judgment of the Director of Public Works, sufficiently similar in form to allow for the combined evaluation of the multiple proposed wireless telecommunications facilities.

E. Initial Review of Completeness of Wireless Right-of-Way Facility Permit Applications.

Following receipt of an application for a Wireless Right-of-Way Facility Permit, the Department of Public Works may conduct site visits and shall make an initial determination whether the application is complete, and shall promptly notify the applicant of that determination.

F. Conditions of Approval.

1. Conditions of Approval. During its review of an application for a Wireless Right-of-Way Facility Permit under this Chapter 15.34, the City may add conditions to its approval, tentative approval, or determination. The Department of Public Works shall promptly notify the applicant in writing of any such conditions and shall give the applicant ten (10) business days to accept or reject the conditions. If applicant′s response is not received by the City by the eleventh (11^{th}) business day, the application may be denied.

2. Acceptance of Conditions Required. The Department of Public Works shall not approve an application for a Wireless Right-of-Way Facility Permit unless the applicant accepts all of the conditions added to an approval, tentative approval, or determination.

G. Street Trees. When reviewing an application for a Wireless Right-of-Way Facility Permit, the City may require as a condition of approval that the permittee plant an appropriate street tree adjacent to the utility pole or street light pole so as to provide a screen for a permitted wireless telecommunications facility. If such a condition is imposed, the permittee shall be required to install a street tree that is a minimum of twenty-four (24)-inch, and up to a forty-eight (48)-inch, box size. The Department of Public Works shall work with the permittee to select the appropriate species and location for the required tree. In any instance in which the Department of Public Works cannot require the permittee to install a street tree, on the basis of inadequate sidewalk width, interference with utilities, or other reasons regarding the public health, safety, or welfare, the Department of Public Works shall instead require the permittee to make an "in-lieu" payment into the "Adopt-A-Tree" fund of the Department of Public Works. This payment shall be in the amount specified in the City's master fee schedule, and shall be payable prior to the Department of Public Works' issuance of the Wireless Right-of-Way Facility Permit.

H. Review of Tier A Wireless Right-of-Way Facility Permit Applications. Within twenty (20) business days following receipt of a completed application for a Wireless Right-of-Way Facility Permit for a Tier A Wireless Telecommunications Facility, the Department of Public Works shall review and determine whether the proposed Tier A Wireless Telecommunications Facility satisfies the Tier A Compatibility Standard, satisfies the Public Health Compliance Standard, and otherwise meets the conditions, standards, and requirements of this Chapter 15.34. The Department of Public Works may extend the time period for this review period beyond twenty (20) business days when additional information is required to make a determination. The Department of Public Works shall not approve an application for a Wireless Right-of-Way Facility Permit unless the Department of Public Works makes a determination that the application satisfies the Tier A Compatibility Standard, satisfies the Public Health Compliance Standard, and otherwise meets the conditions, standards, and requirements of this Chapter 15.34.

I. Review of Tier B Wireless Right-of-Way Facility Permit Applications. Within forty (40) business days following receipt of a completed application for a Wireless Right-of-Way Facility Permit for a Tier B Wireless Telecommunications Facility, the Department of Public Works, in consultation with other City departments as necessary, shall review and determine whether the proposed Tier B Wireless Telecommunications Facility satisfies the Tier B Compatibility Standard, satisfies the Public Health Compliance Standard, and otherwise meets the conditions, standards, and requirements of this Chapter 15.34. With the concurrence of the applicant, the Department of Public Works may extend the time period for this review period beyond forty (40) business days when additional information is required to make a determination. The Department of Public Works shall not approve an application for a Wireless Right-of-Way Facility Permit unless the Department of Public Works makes a determination that the application satisfies the Tier B Compatibility Standard, satisfies the Public Health Compliance Standard, and otherwise meets the conditions, standards, and requirements of this Chapter 15.34.

J. Department of Public Works Determination.

1. Approval. A Department of Public Works' approval of an application for a Wireless Right-of-Way Facility Permit shall be in writing and shall set forth the reasons therefor. If a Department of Public Works' approval contains any conditions, the conditions shall also be in writing. Construction on the approved permit must commence within six (6) months, after which (if construction has not commenced) the permit shall automatically and without further notice or action, expire.

2. Denial. The Department of Public Works shall issue a final determination denying an application for a Wireless Right-of-Way Facility Permit within three (3) business days of any of the following events:

a. The Department of Public Works' determination that the application does not comply with the Public Health Compliance Standard;

b. The Department of Public Works' determination that the application does not meet the applicable compatibility standard; or

c. If the Department of Public Works receives notice from the applicant that it rejects any condition imposed upon the application for a Wireless Right-of-Way Facility Permit.

K. Notice Following Approval of Tier B Wireless Right-of-Way Facility Permit Applications

1. Notice Required. The Department of Public Works shall require an applicant for a Tier B Wireless Right-of-Way Facility Permit to notify the public of the approval of the application under Subsection 15.34.030.J above, and to provide the Department of Public Works with evidence, as the Department of Public Works may require, of compliance with this requirement.

2. Types of Notice Required.

a. Notice by Mail. The applicant shall mail a copy of the notice to any person owning property or residing adjacent or across the street from the proposed location of the wireless telecommunications facility; and

b. Notice by Posting. The applicant shall post a copy of the notice on the proposed wireless telecommunications facility is to be located.

3. Contents and Form of Notice. The notice shall contain such information, and be in such form, as the Department of Public Works reasonably requires in order to inform the general public as to the nature of the application for a Wireless Right-of-Way Facility Permit. At a minimum, the notice shall:

a. Provide a description and a photo-simulation of the proposed wireless telecommunications facility;

b. Summarize the determinations of any City departments that were necessary for the tentative approval of the application;

c. Identify any conditions added by any City departments that have been accepted by the applicant and are now part of the application;

d. State that any person seeking to appeal the grant of the application must submit an appeal notice to the Department of Public Works within ten (10) business days of the date the notice was mailed and posted;

e. Describe the procedure for submitting a timely appeal;

f. Specify the applicable grounds for appealing the application under this Chapter 15.34; and

g. Explain how any interested person may obtain additional information and documents related to the application.

L. Appeal of Tier B Wireless Right-of-Way Facility Permit.

1. Appeal Allowed. The applicant for a Tier B Wireless Right of Way Facility Permit, and/or any person owning or residing at property that is adjacent to or across the street to the location of a proposed Tier B Wireless Telecommunications Facility, may appeal an approval or denial of an application for a Tier B Wireless Right-of-Way Facility Permit. An appeal must be in writing and must be submitted to the City Clerk within ten (10) business days of the date the notice was mailed and posted as required under Subsection 15.34.030.K.2, above.

2. Public Hearing Required. If an appeal is timely submitted, an independent hearing officer selected by the City shall hold a public hearing. The City Clerk shall set a date for the hearing that is at least fifteen (15) business days, but no more than sixty (60) business days, after the City Clerk's receipt of the appeal, unless the applicant and any person submitting an appeal agree to a later hearing date.

3. Notice of Public Hearing Date. At least ten (10) business days before the public hearing, the City Clerk shall notify in writing any person submitting an appeal, the applicant, and any City department that reviewed the application of the

date set for the public hearing. The City Clerk shall follow its regular procedures for notifying the general public of the hearing.

4. Public Hearing Record. The public hearing record shall include:

a. The application and the Department of Public Works' approval of the application;

b. Any written determination from the Department of Public Works;

c. Any further written evidence from any City departments submitted either prior to or during the hearing;

d. Any written submissions from the applicant, any person submitting an appeal, or any other interested person submitted either prior to or during the hearing; and

e. Any oral testimony from any City departments, the applicant, any person submitting a protest, or any interested person taken during the hearing.

5. Hearing Officer Determination. The Hearing Officer shall issue a written resolution containing its determination within fourteen (14) business days following the close of evidence at the conclusion of the public hearing on the appeal. The resolution shall include a summary of the evidence and the ultimate determination whether to grant, grant with modifications, or deny the appeal.

6. Notice of Determination on Appeal.

a. The City Clerk shall promptly mail a notice of a determination on an appeal to both the applicant, to any neighborhood association identified by the Department of Development Services for any neighborhood within three hundred (300) feet of the approved wireless telecommunications facility, and to any person who either filed a protest, submitted evidence, or appeared at the hearing, and whose name and address are known to the Department of Public Works.

M. Notice of Completion and Inspection.

1. Notice of Completion. A permittee shall notify the Department of Public Works immediately upon completion of the installation of a wireless telecommunications facility. The notice of completion must include a written statement from a licensed California engineer confirming that the permitted wireless telecommunications facility complies with the Public Health Compliance Standard.

2. Inspection.

a. Inspection After Installation. The Department of Public Works will inspect a wireless telecommunications facility installed in the public right-of-way within a reasonable time after a permittee provides the Department of Public Works with a notice of completion required under Subsection 15.34.030.M.1, above. The Department of Public Works will determine during the inspection whether:

(i) The installation is in accordance with the requirements of the Wireless Right-of-Way Facility Permit; and

(ii) The permitted wireless telecommunications facility complies with the Public Health Compliance Standard.

b. Subsequent Inspection. If at any time the Department of Public Works has a valid reason to believe that a permitted wireless telecommunications facility does not comply with any local or state regulation, ordinance or law, condition of approval, and/or the Public Health Compliance Standard, the Department of Public Works shall require the permittee to provide additional proof of compliance with such local or state regulation, ordinance or law, condition of approval, and/or the Public Health Compliance Standard, which proof shall be provided within forty-eight (48) hours of such request (or such additional time as the Department of Public Works may grant in its reasonable discretion). If such proof of compliance is not timely provided, or is determined by the Director of Public Works or designee to be insufficient, the City may initiate such additional code enforcement remedies and/or permit revocation procedures as are otherwise permissible. The procedures set forth herein are intended to augment, not limit, the City's permit and code enforcement remedies. The Department of Public Works may also inspect the facility.

N. Compliance.

1. Compliance Required. Any wireless telecommunications facility installed in the public

rights-of-way pursuant to a Wireless Right-of-Way Facility Permit must comply with the terms and conditions of the permit and this Chapter 15.34.

2. Notice of Deficiency.

a. Non-Compliance with Permit. If the Department of Public Works determines, either after an inspection conducted under Subsection 15.34.030.M above or at any other time, that a wireless telecommunications facility is not in compliance with the Wireless Right-of-Way Facility Permit or this Chapter 15.34, the Department of Public Works shall issue a notice of deficiency and require the permittee to take corrective action to bring the wireless telecommunications facility into compliance.

b. Radio Frequency Emissions. If the Department of Public Works determines, either after an inspection required under Subsection 15.34.030.M above or at any other time, that potential human exposure to radio frequency emissions from a permitted wireless telecommunications facility exceeds FCC guidelines, the Department of Public Works shall issue a notice of deficiency and require the permittee to take corrective action to bring the wireless telecommunications facility into compliance with FCC guidelines.

c. Noise. If the Department of Public Works determines, either after an inspection required under Subsection 15.34.030.M above or at any other time, that noise from a permitted wireless telecommunications facility at any time of the day or night exceeds forty-five (45) dBA as measured at a distance three (3) feet from any residential building facade, the Department of Public Works shall issue a notice of deficiency and require the permittee to take corrective action to bring the wireless telecommunications facility into compliance with the noise limit.

3. Department Remedies.

a. Required Action. If a permittee fails to take corrective action with respect to a wireless telecommunications facility within twenty (20) business days after receiving a notice of deficiency, the Department of Public Works shall:

(i) Take all reasonable, necessary, and appropriate action to remedy a permittee's noncompliance; or

(ii) Require a permittee to remove the noncompliant wireless telecommunications facility from the public rights-of-way; and

(iii) Charge to a permittee the reasonable costs that the City has actually incurred including, but not limited to, administrative costs.

b. Discretionary Action. In addition to the foregoing, if a permittee fails to take corrective action with respect to a wireless telecommunications facility within twenty (20) business days after receiving a notice of deficiency the Department of Public Works may deny any pending application filed by permittee for a Wireless Right-of-Way Facility Permit.

O. Abandonment.

1. Permittee Must Maintain Facilities; Compliance with Phasing Plan. Any wireless telecommunications facility installed in the public rights-of-way pursuant to a Wireless Right-of-Way Facility Permit issued under this Chapter 15.34 must be properly maintained and used to provide wireless telecommunications services. Failure to comply with a phasing plan shall constitute an abandonment, and shall be subject to the remedy for noncompliance set forth in Subsection 15.34.030.O.3, below.

2. Notice of Abandonment. A permittee shall notify the Department of Public Works, or the Department of Public Works may determine and notify a permittee, that a wireless telecommunications facility installed in the public right-of-way has been abandoned either because it has not been properly maintained or because it is no longer being used to provide wireless telecommunications services. In such event, a permittee shall promptly remove the abandoned wireless telecommunications facility as required by the Department of Public Works and at permittee's expense.

3. Termination of Permits for Abandoned Wireless Telecommunications Facilities; Remedy for Non-Compliance. Wireless Right-of-Way Facility Permits shall automatically expire upon the abandonment of a wireless telecommunications facility. If a permittee fails to remove an abandoned wireless telecommunications facility within a reasonable period of time after receiving a notice

of abandonment, the Department of Public Works shall take all reasonable, necessary, and appropriate action to remedy the permittee's failure to comply with the notice (including removing the wireless telecommunications facility) and may charge to the permittee the reasonable costs the City has actually incurred including, but not limited to, administrative costs.

P. Term of Permit. A Wireless Right-of-Way Facility Permit shall have a term of ten (10) years. The term shall commence upon the date of issuance of the permit.

Q. Renewal and New Applications.

1. When Permitted.

a. Renewal Permitted. At the end of the term set forth in Subsection 15.34.030.P above, the Department of Public Works may renew a Wireless Right-of-Way Facility Permit for an additional ten (10) year term, provided that the Department of Public Works did not issue a Modification Permit for the permitted wireless telecommunications facility during the term of the permit.

b. Renewal Not Permitted.

(i) A wireless telecommunications facility that has been issued a Modification Permit may not be renewed beyond the expiration of the Modification Permit term. Instead, the permittee may file a new application for a Wireless Right-of-Way Facility Permit for the permitted and modified wireless telecommunications facility at the same location.

(ii) A Wireless Right-of-Way Facility Permit that has been renewed once under Subsection 15.34.030.Q.1.a., above may not be renewed for a second time. Instead, the permittee may file a new application for a Wireless Right-of-Way Facility Permit for the permitted wireless telecommunications facility at the same location.

2. Renewal Application Required. A permittee seeking to renew a Wireless Right-of-Way Facility Permit that may be renewed under Subsection 15.34.030.Q.1., above must file a renewal application with the Department of Public Works no later than six (6) months prior to the expiration date of the existing permit. The renewal application shall include a written report from a certified engineer confirming that the permitted wireless telecommunications facility complies with the Public Health Compliance Standard, and such other material/information as may be directed by the Director of Public Works, so long as such additional material is consistent with the application requirements set forth in Subsection 15.34.030.D, above.

3. Approval of Renewal Application.

a. Satisfaction of Public Health Compliance Standard Required. The Department of Public Works shall review every application under the Public Health Compliance Standard. The Department of Public Works shall approve a timely-filed renewal application unless the Department of Public Works determines that the permitted wireless telecommunications facility does not comply with the Public Health Compliance Standard and/or that any other applicable standard for new wireless telecommunications facilities is not satisfied.

b. Applicability of Other Provisions of this Chapter. The other provisions of this Chapter 15.34 related to approval of an application for a Wireless Right-of-Way Facility Permit shall not apply to the Department of Public Works' review of a renewal application.

4. New Application.

a. Required When Renewal Not Permitted. If, in accordance with Subsection 15.34.030.Q.1. above, a wireless telecommunications facility cannot be renewed, the permittee must submit a new application for a Wireless Right-of-Way Facility Permit in order to continue to maintain the permitted wireless telecommunications facility in the public rights-of-way.

b. Removal Not Required. Notwithstanding any other applicable law, if the permittee submits an application for a Wireless Right-of-Way Facility Permit no later than six (6) months prior to the expiration date of a previously issued Wireless Right-of-Way Facility Permit, the Department of Public Works shall not require the applicant to remove the permitted wireless telecommunications facility unless and until there is a final determination denying the application.

R. Replacement or Removal of Equipment.

1. Replacement. During the term of a Wireless Right-of-Way Facility Permit, a permittee may replace equipment that is part of a permitted wireless telecommunications facility without obtaining a Modification Permit.

2. Removal. During the term of a Wireless Right-of-Way Facility Permit, a permittee may remove equipment that is part of a permitted wireless telecommunications facility without obtaining a Modification Permit.

3. Department Procedures.

a. Permittee's Notification. A permittee shall notify the Department of Public Works in writing that it intends to replace or remove equipment at a permitted wireless telecommunications facility as permitted by this Subsection 15.34.030.R. In the notice, the permittee shall at a minimum:

(i) Identify the use and size of each piece of equipment that the permittee is seeking to remove from the utility pole or street light pole;

(ii) Identify the use and size of the equipment that the permittee is seeking to install on the utility pole or street light pole to replace existing equipment; and

(iii) If any new equipment will replace existing equipment, provide drawings and photo simulations of the existing and new equipment the permittee is seeking to install on the utility pole or street light pole.

b. Department of Public Works Notification. Within five (5) business days of receipt of the permittee's request to replace or remove equipment as described above, the Department of Public Works shall notify the permittee in writing whether the Department of Public Works has determined that the request complies with the requirements of this Subsection 15.34.030.R.

c. Permittee Replacement or Removal. Upon receipt of a Department of Public Works notice that the request complies with this Subsection 15.34.030.R, the permittee may replace or remove the equipment identified in the request.

d. Compliance with Other Requirements. Nothing in this Subsection 15.34.030.R shall be construed to relieve the permittee of its duty to comply with any City regulations or permitting requirements when removing equipment from or replacing equipment on a utility pole or street light pole.

S. Modification Permit.

1. Modification Permit Required. A permittee seeking to add equipment to a permitted wireless telecommunications facility that does not comply with the requirements of Subsection 15.34.030.R above, because the replacement equipment is not identical in size or smaller than the previously permitted equipment, must obtain a Modification Permit.

2. Department Procedures.

a. Application. In an application for a Modification Permit, the applicant shall at a minimum:

(i) State whether the permitted wireless telecommunications facility is a base station;

(ii) Identify the use and size of any piece of equipment that the applicant is seeking to remove from the utility pole or street light pole;

(iii) Identify the use and size of any equipment that the applicant is seeking to add to the utility pole or street light pole;

(iv) State whether any piece of equipment the applicant is seeking to add to the utility pole or street light pole is transmission equipment and, if so, explain why it meets the definition of transmission equipment;

(v) Provide drawings and photo-simulations of the existing and new equipment the permittee is seeking to install on the utility pole or street light pole; and

(vi) State whether the proposed modification will result in a substantial change to the physical dimensions of the utility pole or street light pole.

b. Time for Department Determination. The Department of Public Works shall by order or regulation establish the appropriate timeframe for the Department of Public Works to review an application for a Modification Permit that is consistent with the requirements of Section 6409(a) of the Middle Class Tax Relief and Job Creation Act of 2012, codified at 47 U.S.C. § 1455(a), as may be

amended from time to time, and with any FCC decision addressing that section or any FCC regulation implementing that section.

3. Approval of Modification Permits at Base Stations.

a. No Substantial Change to the Physical Dimension. The Department of Public Works shall approve an eligible facilities request for a Modification Permit if the installation of the modified transmission equipment would not substantially change the physical dimensions of the utility pole or street light pole where the permitted base station equipment has been installed.

b. Substantial Change to the Physical Dimensions. The Department of Public Works may approve an eligible facilities request for a Modification Permit if the installation of the modified transmission equipment would substantially change the physical dimensions of the utility pole or street light pole where the permitted base station equipment has been installed, provided the application complies with the requirements of Subsection 15.34.030.S.5, below.

c. Equipment Other than Transmission Equipment. The Department of Public Works may approve an application for a Modification Permit at a wireless telecommunications facility that is a base station if the application seeks to modify equipment other than transmission equipment, provided the application complies with the requirements of Subsection 15.34.030.S.5.b, below.

4. Approval of Modification Permits at Other Types of Facilities. The Department of Public Works may approve an application for a Modification Permit at a wireless telecommunications facility that is not a base station, provided the application complies with the requirements of Subsection 15.34.030.S.5.b, below.

5. Applicability of Other Provisions of this Chapter.

a. No Substantial Change to the Physical Dimension. The other provisions of this Chapter 15.34 related to approval of an application for a Wireless Right-of-Way Facility Permit shall not apply to the Department of Public Works' review of an application for a Modification Permit that complies with the requirements of Subsection 15.34.030.S.3.a, above.

b. Other Types of Modifications. Before approving an application for a Modification Permit under Subsections 15.34.030.S.3.b, S.3.c, and S.4 above, the Department of Public Works shall: (A) determine whether the proposed wireless telecommunications facility complies with the Public Health Compliance Standard; and (B) determine compliance with any applicable compatibility standards. The Department of Public Works may not approve the Modification Permit if any City department determines the application does not comply with the appropriate standard(s). In addition, the Department may determine that compliance with other provisions of this Chapter 15.34 shall be required.

6. Generally Applicable Laws. Nothing in this Subsection 15.34.030.S shall prohibit the Department of Public Works from denying an application for a Modification Permit (even where the application consists of an eligible facilities request) where the Department of Public Works determines that the proposed modified wireless telecommunications facility would violate any generally applicable building, structural, electrical, or safety code provision, or any applicable law codifying objective standards reasonably related to health and safety.

T. Fees and Costs.

1. Application Fees. The City shall impose fees for review of an application for a Wireless Right-of-Way Facility Permit. The purpose of these fees is to enable the City to recover its costs related to reviewing an application for a Wireless Right-of-Way Facility Permit. The fee amounts shall be established and/or adjusted pursuant to an adopted fee resolution of the City Council, or as otherwise established and/or adjusted pursuant to applicable law.

2. Hearing Fees. If one or more appeal hearings is required, each appellant shall pay the Department of Public Works a non-refundable hearing fee for each appeal.

3. Renewal Fees. A permittee seeking to renew a Wireless Right-of-Way Facility Permit shall pay the Department of Public Works a non-refundable permit renewal fee.

4. Modification Permit Fees. Each applicant for a Modification Permit shall pay the Department of Public Works a non-refundable permit modification fee, and shall further pay any other permit review fees as required by Subsection 15.34.030.T.1, above.

5. Inspection Fees. The Department of Public Works shall impose fees for the inspection of a permitted wireless telecommunications facility. The purpose of these fees is to enable the City to recover their costs related to inspecting a permitted wireless telecommunications facility.

6. Discretion to Require Additional Fees. In instances where the review of an application for a Wireless Right-of-Way Facility Permit is or will be unusually costly to the Department of Public Works or to other City departments, the Director of Public Works, in his or her discretion, may, after consulting with other applicable City departments, agencies, boards, or commissions, require an applicant for a Wireless Right-of-Way Facility Permit to pay a sum in excess of the amounts charged pursuant to this Subsection 15.34.030.T. This additional sum shall be sufficient to recover actual costs incurred by the Department of Public Works and/or other City departments, agencies, boards, or commissions, in connection with an application for a Wireless Right-of-Way Facility Permit and shall be charged on a time and materials basis. Whenever additional fees are charged, the Director of Public Works, upon request, shall provide in writing the basis for the additional fees and an estimate of the additional fees.

7. Deposit of Fees. All fees paid to the Department of Public Works for Wireless Right-of-Way Facility Permit shall be deposited in the General Fund. All other fees shall go directly to the appropriate City department.

8. Reimbursement of City Costs. The Department of Public Works may determine that it requires the services of an expert in order to evaluate an application for a Wireless Right-of-Way Facility Permit. In such case, the Department of Public Works shall not approve the application unless the applicant agrees to reimburse the applicable City department for the reasonable costs incurred by that department for the services of a technical expert.

U. Base Station Determination.

1. Request for Determination.

a. New Facilities. An applicant for a Wireless Right-of-Way Facility Permit may seek a determination from the Department of Public Works that a proposed wireless telecommunications facility is a base station.

b. Permitted Facilities. A permittee may seek a determination from the Department of Public Works that a permitted wireless telecommunications facility is a base station.

2. Single Determination Permitted. Once the Department of Public Works has determined that an applicant′s new wireless telecommunications facility or a permittee′s permitted wireless telecommunications facility is a base station, the Department of Public Works may apply that determination to the applicant′s or permittee′s other wireless telecommunications facilities that use the identical equipment.

3. Department Order. In lieu of a case-by-case determination, the Department may determine by order or regulation those types of wireless telecommunications facilities that meet the definition of the term base station. (ORD-18-0012 § 2, 2018)

15.34.040 Other provisions.

A. Temporary Wireless Telecommunication Facilities. Installation, maintenance, or operation of any temporary wireless telecommunications site is prohibited except as allowed under a special events permit necessary during a special event authorized by Chapter 5.60, or during a government-declared emergency.

B. Illegal facilities. Illegal wireless telecommunications facilities or co-location facilities have no vested rights and shall either be brought into legal

conforming status in accordance with this Chapter and Title 21 of the Long Beach Municipal Code, or shall be removed.

C. Transfer or Change of Ownership/Operator. Upon assignment or transfer of an already approved wireless telecommunications facility or any rights under that permit, the owner and/or current operator of the facility shall within thirty (30) business days of such assignment or transfer provide written notification to the Director of Public Works of the date of the transfer and the identity of the transferee. The Director may require submission of any supporting materials or documentation necessary to determine that the proposed use is in compliance with the existing permit and all of its conditions including, but not limited to, statements, photographs, plans, drawings, models, and analysis by a state-licensed radio frequency engineer demonstrating compliance with all applicable regulations and standards of the FCC and the California Public Utilities Commission. If the Director determines that the proposed operation is not consistent with the existing permit, the Director shall notify the applicant who may revise the application or apply for modification of the permit pursuant to the requirements of this Chapter. (ORD-18-0012 § 2, 2018)

15.34.050 Severability clause.

If any provision or clause of this Chapter or the application thereof to any person or circumstance is held to be unconstitutional or to be otherwise invalid by any court of competent jurisdiction, such invalidity shall not affect other article provisions or clauses or applications, and to this end the provisions and clauses of this Chapter are declared to be severable. (ORD-18-0012 § 2, 2018)

CHAPTER 15.36 GAS RATES*

15.36.010 Categories established.

The rate categories for gas sold or transported by the City's gas utility are established as set forth in this Chapter. (Ord. C-7123 § 1, 1993: Ord. C-5713 § 1 (part), 1981: prior code § 7561(a)(part))

15.36.020 Schedule 1—Residential.

A. Applicability. Schedule 1 is applicable to residential service of natural gas for cooking, water heating, space heating and other residential uses.

B. Use priority. Customers served under Schedule 1 shall have priority in the use of gas over customers served under other rate schedules as established by resolution of the City Council. When there is curtailment or insufficient gas to supply the demands of all customers, such customers shall be subject to discontinuance of service without notice in case of curtailment or threatened or actual shortage of gas in favor of customers under other schedules as set forth by resolution adopted by the City Council. The City shall not be liable for damages which may be occasioned by the curtailment, discontinuance or shut off of such gas supply and service.

C. Rates. Current rate schedules applicable to customers served under Schedule 1 shall be established by resolution of the City Council and available at the office of the City Clerk, 333 West Ocean Boulevard; Commercial Services, 333 West Ocean Boulevard; and Gas Department Administration Building, 2400 East Spring Street.

D. Special conditions. A current list of the special conditions applicable to customers served under Schedule 1 shall be available at the office of the City Clerk, 333 West Ocean Boulevard; Commercial Services, 333 West Ocean Boulevard; and Gas Department Administration Building, 2400 East Spring Street.

1. Baseline rates. Baseline rates are applicable only to specific volumes of residential space heating, cooking and water heating usage.

2. Baselines usage. The quantities of gas used in metered residences are to be billed at the baseline rates as shall be established by City Council by resolution. Usage in excess of applicable baseline allowances will be billed at residential nonbaseline rates.

*Note—Prior ordinance history: Ords. C-5325, C-5538, C-5555, C-5569 and C-5665.

3. Additional residential baseline therm allowance for certain medical conditions. An additional daily therm baseline allowance shall be allowed residential customers using gas for space heating and/or gas operated life support equipment, throughout the year, where there is permanently residing at the service address a person who, for purposes of this Section, has certain medical conditions as set forth in the special conditions applicable to customers served under Schedule 1, as established by resolution of the City Council and available at the office of the City Clerk, 333 West Ocean Boulevard; and Gas Department Administration Building, 2400 East Spring Street.

Any residential gas customer qualifying for the additional baseline allowance under this Section shall be required to file an application with the Commercial Services Bureau, on forms supplied by the bureau. Additional special conditions and definitions applicable to persons qualifying for the additional allowance shall be set forth in the special conditions applicable to customers served under Schedule 1, as established by resolution.

It shall be a misdemeanor for any person to knowingly provide false information in an application or to knowingly receive the benefits of the additional baseline allowance for a medical condition provided by this Section when the basis for such benefit either does not exist or ceases to exist.

4. Seasonal Rate Changes. The baseline allowances for space heating will be prorated in the May and November billing periods based on the ratio of the number of days prior to May 1 and subsequent to October 31, respectively, to the total number of days in the billing period.

5. Additional special conditions applicable to customers served under Schedule 1 shall be established by resolution of the City Council. (Ord. C-7472 § 1, 1997; Ord. C-7426 § 1, 1996; Ord. C-6905 § 1 (part), 1991: Ord. C-5713 § 1 (part), 1981: prior code § 7461(a)(1))

15.36.030 Schedule 2—Small commercial and industrial service.

A. Applicability. Schedule 2 is applicable to nonresidential uses of natural gas by small commercial and industrial customers whose annual consumption does not exceed twelve thousand (12,000) therms based on the customer's prior calendar year consumption, or estimated annual consumption for new customers.

B. Use Priority. Customers served under Schedule 2 shall have priority in the use of gas over customers served under other rate schedules as established by resolution of the City Council. When there is curtailment or insufficient gas to supply the demands of all customers, such customers shall be subject to discontinuance of service without notice in case of curtailment or threatened or actual shortage of gas in favor of customers under other schedules as set forth by resolution adopted by the City Council. The City shall not be liable for damages which may be occasioned by the curtailment, discontinuance or shut off of such gas supply and service.

C. Rates. Current rate schedules applicable to customers served under Schedule 2 shall be established by resolution of the City Council and available at the office of the City Clerk, 333 West Ocean Boulevard; Commercial Services, 333 West Ocean Boulevard; and Gas Department Administration Building, 2400 East Spring Street.

D. Special Conditions. Special conditions applicable to customers served under Schedule 2 shall be established by resolution of the City Council. A current list of the special conditions applicable to customers served under Schedule 2 shall be available at the office of the City Clerk, 333 West Ocean Boulevard; Commercial Services, 333 West Ocean Boulevard; and Gas Department Administration Building, 2400 East Spring Street. (Ord. C-7426 § 2, 1996; Ord. C-6905 § 1 (part), 1991: Ord. C-5713 § 1 (part), 1981: prior code § 7461(a)(2))

15.36.040 Schedule 3—Commercial and industrial service.

A. Applicability. Schedule 3 is applicable to natural gas used by commercial and industrial

customers whose annual consumption exceeds twelve thousand (12,000) therms based upon the customer's prior calendar year consumption or estimated annual consumption for new customers.

B. Use Priority. Customers served under Schedule 3 shall have priority in the use of gas over customers served under other rate schedules as established by resolution of the City Council. When there is curtailment or insufficient gas to supply the demands of all customers, such customers shall be subject to discontinuance of service without notice in case of curtailment or threatened or actual shortage of gas in favor of customers under other schedules as set forth by resolution adopted by the City Council. The City shall not be liable for damages which may be occasioned by the curtailment, discontinuance or shut off of such gas supply and service.

C. Rates. Current rate schedules applicable to customers served under Schedule 3 shall be established by resolution of the City Council and available at the office of the City Clerk, 333 West Ocean Boulevard; Commercial Services, 333 West Ocean Boulevard; and Gas Department Adminis-

tration Building, 2400 East Spring Street. (Ord. C-7426 § 3, 1996; Ord. C-6905 § 1 (part), 1991: Ord. C-5713 § 1 (part), 1981: prior code § 7461(a)(3))

15.36.050 Schedule 4—Large commercial and industrial service.

A. Applicability. Schedule 4 is applicable to natural gas used for commercial and industrial uses by customers whose annual consumption exceeds two hundred fifty thousand (250,000) therms based upon the customer's prior calendar year consumption or estimated annual consumption for new customers.

B. Use Priority. Customers served under Schedule 4 shall have priority in the use of gas over customers served under other rate schedules as established by resolution of the City Council. When there is curtailment or insufficient gas to supply the demands of all customers, such customers shall be subject to discontinuance of service without notice in case of curtailment or threatened or actual shortage of gas in favor of customers under other schedules as set forth by resolution adopted by the City Council. The City shall not be liable for damages which may be occasioned by the curtailment, discontinuance or shut off of such gas supply and service.

C. Rates. Current rate schedules applicable to customers served under Schedule 4 shall be established by resolution of the City Council and available at the office of the City Clerk, 333 West Ocean Boulevard; Commercial Services, 333 West Ocean Boulevard; and Gas Department Administration Building, 2400 East Spring Street.

D. Special Conditions. Special conditions applicable to customers served under Schedule 4 shall be established by resolution of the City Council. A current list of the special conditions applicable to customers served under Schedule 4 shall be available at the office of the City Clerk, 333 West Ocean Boulevard; Commercial Services, 333 West Ocean Boulevard; and Gas Department Administration Building, 2400 East Spring Street. (Ord. C-7426 § 4, 1996; Ord. C-7123 § 2, 1993; Ord. C-6905 § 1 (part), 1991: Ord. C-5713 § 1 (part), 1981: prior code § 7461(a)(4))

15.36.060 Schedule 5—Compressed natural gas service.

A. Applicability. Schedule 5 is applicable to the service and sale of compressed natural gas (CNG) to customers who use CNG as a motor vehicle fuel.

B. Use Priority. Customers served under Schedule 5 shall have priority in the use of gas over customers served under other rate schedules as established by resolution of the City Council. When there is curtailment or insufficient gas to supply the demands of all customers, such customers shall be subject to discontinuance of service without notice in case of curtailment or threatened or actual shortage of gas in favor of customers under other schedules as set forth by resolution adopted by the City Council. The City shall not be liable for damages which may be occasioned by the curtailment, discontinuance or shut off of such gas supply and service.

C. Rates. Current rate schedules applicable to customers served under Schedule 5 shall be established by resolution of the City Council and available at the office of the City Clerk, 333 West Ocean Boulevard; Commercial Services, 333 West Ocean Boulevard; and Gas Department Administration Building, 2400 East Spring Street.

D. Special Conditions. Special conditions applicable to customers served under Schedule 5 shall be established by resolution of the City Council. A current list of the special conditions applicable to customers served under Schedule 5 shall be available at the office of the City Clerk, 333 West Ocean Boulevard; Commercial Services, 333 West Ocean Boulevard; and Gas Department Administration Building, 2400 East Spring Street. (Ord. C-7426 § 5, 1996; Ord. C-6905 § 1 (part), 1991: Ord. C-5713 § 1 (part), 1981: prior code § 7461(a)(5))

15.36.070 Schedule 6—Utility electric generation.

A. Applicability. Schedule 6 is applicable to uses of natural gas in the generation of electric energy by an electrical corporation or government entity, except cogeneration facilities. "Electrical

corporation" has the same meaning as defined in Section 218 of the Public Utilities Code of the State.

B. Use Priority. Customers served under Schedule 6 shall have priority in the use of gas over customers served under other rate schedules as established by resolution of the City Council. When there is curtailment or insufficient gas to supply the demands of all customers, such customers shall be subject to discontinuance of service without notice in case of curtailment or threatened or actual shortage of gas in favor of customers under other schedules as set forth by resolution adopted by the City Council. The City shall not be liable for damages which may be occasioned by the curtailment, discontinuance or shut off of such gas supply and service.

C. Rates. Current rate schedules applicable to customers served under Schedule 6 shall be established by resolution of the City Council and available at the office of the City Clerk, 333 West Ocean Boulevard; Commercial Services, 333 West Ocean Boulevard; and Gas Department Administration Building, 2400 East Spring Street.

D. Special Conditions. Special conditions applicable to customers served under Schedule 6 shall be established by resolution of the City Council. A current list of the special conditions applicable to customers served under Schedule 6 shall be available at the office of the City Clerk, 333 West Ocean Boulevard; Commercial Services, 333 West Ocean Boulevard; and Gas Department Administration Building, 2400 East Spring Street. (Ord. C-7426 § 6, 1996; Ord. C-6905 § 1 (part), 1991: Ord. C-5713 § 1 (part), 1981: prior code § 7461(a)(6))

15.36.071 Schedule 7—Natural gas service for cogeneration.

A. Applicability. Schedule 7 is applicable to natural gas service for qualifying cogeneration facilities. "Cogeneration" is defined as the sequential production of electrical energy and heat, steam or useful work from the same fuel source and meeting the efficiency standards set forth in Chapter 18 of the Code of Federal Regulations, Sections 292.205(a) and (b) and subsequent revisions thereto.

B. Use Priority. Customers served under Schedule 7 shall have priority in the use of gas over customers served under other rate schedules as established by resolution of the City Council. When there is curtailment or insufficient gas to supply the demands of all customers, such customers shall be subject to discontinuance of service without notice in case of curtailment or threatened or actual shortage of gas in favor of customers under other schedules as set forth by resolution adopted by the City Council. The City shall not be liable for damages which may be occasioned by the curtailment, discontinuance or shut off of such gas supply and service.

C. Rates. Current rate schedules applicable to customers served under Schedule 7 shall be established by resolution of the City Council and available at the office of the City Clerk, 333 West Ocean Boulevard; Commercial Services, 333 West Ocean Boulevard; and Gas Department Administration Building, 2400 East Spring Street.

D. Special Conditions. Special conditions applicable to customers served under Schedule 7 shall be established by resolution of the City Council. A current list of the special conditions applicable to customers served under Schedule 7 shall be available at the office of the City Clerk, 333 West Ocean Boulevard; Commercial Services, 333 West Ocean Boulevard; and Gas Department Administration Building, 2400 East Spring Street. (Ord. C-7426 § 7, 1996; Ord. C-6905 § 1 (part), 1991: Ord. C-6303 § 1, 1986; Ord. C-6174 § 1 (part), 1985)

15.36.072 Schedule 8—Natural gas service for enhanced oil recovery.

A. Applicability. Schedule 8 is applicable to natural gas service for direct use by an oil production customer for the purpose of increasing the production of oil.

B. Use Priority. Customers served under Schedule 8 shall have priority in the use of gas over customers served under other rate schedules as established by resolution of the City Council. When

there is curtailment or insufficient gas to supply the demands of all customers, such customers shall be subject to discontinuance of service without notice in case of curtailment or threatened or actual shortage of gas in favor of customers under other schedules as set forth by resolution adopted by the City Council. The City shall not be liable for damages which may be occasioned by the curtailment, discontinuance or shut off of such gas supply and service.

C. Rates. Current rate schedules applicable to customers served under Schedule 8 shall be established by resolution of the City Council and available at the office of the City Clerk, 333 West Ocean Boulevard; Commercial Services, 333 West Ocean Boulevard; and Gas Department Administration Building, 2400 East Spring Street.

D. Special Conditions. Special conditions applicable to customers served under Schedule 8 shall be established by resolution of the City Council. A current list of the special conditions applicable to customers served under Schedule 8 shall be available at the office of the City Clerk, 333 West Ocean Boulevard; Commercial Services, 333 West Ocean Boulevard; and Gas Department Administration Building, 2400 East Spring Street. (Ord. C-7426 § 8, 1996; Ord. C-6905 § 1 (part), 1991: Ord. C-6174 § 1 (part), 1985)

15.36.080 Schedule 9—Transportation and exchange service.

A. Applicability. Schedule 9 is applicable to natural gas procured by the customer and transported or exchanged by the City's Gas Department for the customer. The customer may also elect to purchase natural gas directly from the City's Gas Department by agreement. Gas transported under this schedule shall be used only by the customer and such gas may not be sold, transported, distributed, assigned, exchanged, or otherwise transferred to benefit another customer or provide nonmunicipal natural gas to any natural gas user, transporter or consumer within the City or its service territory without express written authorization by the City. Customers desiring to procure natural gas under this schedule shall be required to execute a transportation and gas service agreement with the City.

B. Use priority. Customers served under Schedule 9 shall have priority in the use of gas over customers served under other rate schedules as established by resolution of the City Council. When there is curtailment or insufficient gas to supply the demands of all customers, such customers shall be subject to discontinuance of service without notice in case of curtailment or threatened or actual shortage of gas in favor of customers under other schedules as set forth by resolution adopted by the City Council. The City shall not be liable for damages which may be occasioned by the curtailment, discontinuance or shut off of such gas supply and service.

C. Rates. Current rates schedules applicable to customers served under Schedule 9 shall be established by resolution of the City Council and available at the office of the City Clerk, 333 West Ocean Boulevard; and Gas Department Administration Building, 2400 East Spring Street.

D. Special conditions. Special conditions applicable to customers served under Schedule 9 shall be established by resolution of the City Council. A current list of the special conditions applicable to customers served under Schedule 9 shall be available at the office of the City Clerk, 333 West Ocean Boulevard; and Gas Department Administration Building, 2400 East Spring Street. (Ord. C-7426 § 9, 1996; Ord. C-7123 § 3, 1993: Ord. C-5713 § 1 (part), 1981: prior code § 7461(a)(7))

15.36.085 Schedule 10—Air conditioning equipment service.

A. Applicability. Schedule 10 is applicable to natural gas service for customers operating gas air conditioning equipment using high efficiency gas cooling absorption chillers, except that no customer shall be eligible for Schedule 10 service without first making application to the gas department administration building, establishing that the gas air conditioning equipment qualifies as high efficiency gas air conditioning equipment

according to the requirements of the gas department as set forth in the special conditions and providing for a separate gas meter for Schedule 10 gas consumption.

B. Use priority. Customers served under Schedule 10 shall have priority in the use of gas over customers served under other rate schedules as established by resolution of the City Council. When there is curtailment or insufficient gas to supply the demands of all customers, such customers shall be subject to discontinuance of service without notice in case of curtailment or threatened or actual shortage of gas in favor of customers under other schedules as set forth by resolution adopted by the City Council. The City shall not be liable for damages which may be occasioned by the curtailment, discontinuance or shut off of such gas supply and service.

C. Rates. Current rate schedules applicable to customers served under Schedule 10 shall be established by resolution of the City Council and available at the office of the City Clerk, 333 West Ocean Boulevard; Commercial Services, 333 West Ocean Boulevard; and Gas Department Administration Building, 2400 East Spring Street.

D. Special conditions. Special conditions applicable to customers served under Schedule 10 shall be established by resolution of the City Council. A current list of special conditions applicable to customers served under Schedule 10 shall be available at the office of the City Clerk, 333 West Ocean Boulevard; Commercial Services, 333 West Ocean Boulevard; and Gas Department Administration Building, 2400 East Spring Street. (Ord. C-7336 § 2, 1995)

15.36.090 Other fees and charges.

Fees and charges for other services provided by the gas utility shall be as established on the schedule of fees and charges, which is available at the office of the City Clerk, 333 West Ocean Boulevard; Commercial Services, 333 West Ocean Boulevard; and Gas Department Administration Building, 2400 East Spring Street. (Ord. C-5713 § 1 (part), 1981: prior code § 7461(a)(8))

15.36.095 Gas equipment incentives.

A. Purpose. In order to assist customers in determining the feasibility of natural gas energy and potential benefits of gas equipment, and provide for increased net revenue to the Gas Department through long-term increased natural gas consumption, customers may apply for certain cost reimbursement incentive programs, subject to the availability of funds and other requirements herein.

B. Application. An applicant for an incentive program shall file a written application with the General Manager of the Gas Department on forms to be provided by the City. The application shall include:

1. The name and address of the applicant,
2. The type of gas equipment being considered for purchase,
3. The size or capacity of the equipment and the volume of expected natural gas consumption,
4. The applicant's forecasted payback period,
5. The applicant's willingness to share relevant data and provide access to the facility,
6. The applicant's forecast of time for implementation of studies or gas equipment purchases,
7. Estimates of cost of feasibility studies, and
8. Estimates of cost of natural gas equipment.

C. Execution of agreement. Prior to disbursement of any funds to the applicant, the applicant shall be required to execute an agreement with the City which shall be subject to City Council approval.

D. Requirements. Requirements shall be established by resolution of the City Council. A current list of requirements applicable to customers shall be available at the office of the City Clerk, 333 West Ocean Boulevard; and Gas Department Administration Building, 2400 East Spring Street. (Ord. C-7336 § 3, 1995)

15.36.100 Increase or decrease.

The General Manager of the City's Gas Department shall regularly review rates, tariffs, fees, charges and services of other like utilities whether public or private operating in the Southern California area and submit to the City Manager a

schedule of natural gas rates, fees, charges which are reasonable and comparable to rates, fees, and charges by other like utilities in the Southern California area. The City Manager shall adjust gas rates, fees, and charges for the City contained in Chapter 15.36 of this Code to reflect increases or decreases in the price of the commodity, transportation, charges, fees, and related services. The City Clerk shall post such new rates, fees, charges, and service at three (3) conspicuous places within the City. The City Manager shall report changes in rates, charges, fees, and services to the City Council as soon as practicable. The City Council may approve, disapprove or modify such changes by resolution. (Ord. C-7336 § 1, 1995: Ord. C-6905 § 1 (part), 1991: Ord. C-5713 § 1 (part), 1981: prior code § 7461(b)(1))

15.36.120 Low income gas discount.

A. The payment of gas bills as outlined in this Section is subject to a low income gas discount for any person applying and qualifying for a low income gas discount. No person shall be entitled to any discount unless the person is (i) a service customer of the City's gas utility, or (ii) an occupant of a mobile home who receives a gas bill from an operator of a mobile home park which is a customer of the City's gas utility, and in either case an application is completed and approved by the City.

B. The amount of the discount and the qualifications for eligibility shall be established and become effective by resolution of the City Council and made available at the office of the City Clerk, 333 West Ocean Boulevard; Commercial Services, 333 West Ocean Boulevard; and Long Beach Energy Administration Building, 2400 East Spring Street.

C. Notwithstanding any of the provisions of this Section, however, if the City determines by any means that a new or nonqualified service user is receiving gas service through a meter or connection by virtue of a low income gas discount issued to a previous certified applicant for the same meter or connection, or an applicant is no longer eligible for the low income discount and has failed to advise the City, an investigation shall be conducted to ascertain whether or not the provisions of this Section and the resolution establishing the low income discount eligibility and qualifications have been complied with, and where appropriate, the City shall commence collecting the full amount for gas service delivered to the nonqualified service user and collect for all prior service for any period where the service user was not qualified to receive a low income gas discount. (ORD-12-0019, § 1, 2012; Ord. C-7792 § 1, 2002: Ord. C-6076 § 1, 1984; Ord. C-5713 § 1 (part), 1981: prior code § 7461(c))

CHAPTER 15.40 GAS REGULATIONS*

15.40.010 Definitions.

For purposes of this Chapter, unless the context clearly requires a different meaning, the words, terms and phrases set forth herein are defined as follows:

1. "Active or open account" means an account for which a customer has signed and is being billed for gas service.

2. "Applicant" means any person requesting gas service, service installation, main extensions, or any other service performed by the utility, or its authorized agent.

3. "Utility services officer" means the billing and collections officer of the City of Long Beach.

4. "Billing period" means the time interval between two (2) consecutive meter readings which are taken for billing purposes.

5. "City" means the City of Long Beach, California.

6. "Commercial Services Bureau" means the Commercial Services Bureau of the Department of Financial Management of the City.

7. "Cost" means the actual cost to the utility, including all labor, material, supplies, equipment and miscellaneous items, together with any applicable indirect and general charges, plus the cost for general administrative overhead, in accordance with the account practices of the utility.

*Note—Prior ordinance history: Ord. C-5644.

8. "CPUC" means the California Public Utilities Commission.

9. "Customer" means a person in whose name service is rendered as evidenced by the signature on the application, contract, or agreement for service, or in the absence of a signed instrument, by the receipt and payment of bills for such service regularly issued in such person's name regardless of the identity of the actual user of such service.

10. "Date of presentation" means the date upon which a bill or notice is mailed, or personally delivered by the gas utility or its representative, to the customer.

11. "Facilities charge" means the charge payable by the applicant for the installation of gas system facilities in a new subdivision or other parcel.

12. "Gas service" means the availability of gas to a premises through the facilities of the utility and any gas supplied through such facilities.

13. "Gas supply system" includes the works and auxiliaries for collection, storage, and distribution of gas from the source of supply to the point of connection with the customer's facilities.

14. "Inactive or closed account" means an account which is not signed for and has no current customer. The account remains in the billing system, and can be reactivated upon application.

15. "Main" means a gas pipeline located in streets, highways, public ways, thoroughfares, or private rights-of-way, and which is used to serve the gas utility customer.

16. "Meter service charge" means that portion of the charge for gas service which is a fixed amount related to the rate category served and unrelated to the quantity of gas registered on the gas meter.

17. "Person" means any individual partnership, corporation, agency or other organization.

18. "Premises" means all real property, buildings and appurtenances occupied by an owner, lessee, or tenant as a dwelling or as a business, commerical or industrial enterprise upon an integral parcel of land undivided by a public thoroughfare.

19. "Pro-rata charge" means a charge payable by the applicant for the installation of gas system facilities from a main eligible to main prolongation charge refund.

20. "Quantitative charge" means a charge, based on current gas rate schedules, for the amount gas registered on the gas meter serving the premises.

21. "Reconnection" means the same as service restoration.

22. "Regular service connection" means a facility for the delivery of gas to a permanent location for domestic, commercial or industrial use. It consists of the pipe valves, fittings, meter and other equipment by means of which the utility conducts gas from its distribution main to the point of the customer's connection.

23. "Service" means the same as "gas service," unless the context indicates otherwise.

24. "Service connection charge" means the charge payable by the applicant for the installation of a regular or temporary service connection.

25. "Service restoration" means reestablishment of gas service after discontinuance of service for any reason.

26. "Temporary service" means gas service for construction work or other uses as deemed feasible by the utility, such that service is required for only a limited time.

27. "Utility" means the gas utility of the City.

28. "Utility users tax" means a tax imposed by the general City government on a utility service user. (Ord. C-7019 §§ 1, 2, 1992; Ord. C-5713 § 1 (part), 1981: prior code § 7461.1)

15.40.020 Service requirements and conditions.

A. Application. Each prospective customer shall make application for the service desired. Application for service does not in itself bind the gas utility to serve the applicant, except under reasonable conditions, and in accordance with the applicable rate schedule.

B. Shortage of gas supply and interruptions of delivery. The gas utility shall exercise reasonable diligence and care to furnish and deliver a

continuous and sufficient supply of gas to the customer, and to avoid any shortage or interruption or insufficiency of supply, or any loss or damage occasioned thereby. The gas utility is not

responsible for any loss or damage if the same is caused by unavoidable accident, act of God, fire, earthquake, strikes, riots, war or any other cause not within its control.

Whenever the gas utility shall find it necessary for the purpose of making repairs or improvements to its system, it may suspend temporarily the delivery of gas, and notwithstanding any provision of this ordinance to the contrary, at its discretion, give such reasonable notice thereof as circumstances may permit to the affected customers. The making of such repairs or improvements shall be completed as rapidly as practicable and at such times as will cause the least inconvenience to the customers.

C. Use of Gas Without Application for Service. Any person who takes possession of a premises where the gas supply has been shut off by the gas utility and uses gas without making proper application for gas service shall be responsible for all charges for the gas service.

When a person takes possession of any premises and finds the gas supply to be turned on, he shall notify the gas utility of such findings and make application for gas service within three (3) working days of his occupancy of the premises. If the person fails to notify the gas utility he will be held liable for all charges for gas services rendered.

In either event, the amount of such charges shall be determined by the gas utility, either by meter readings or on the basis of the estimated consumption for the time gas was used.

In the event the consumer or other person turns on the gas supply by opening the meter stop or a sealed valve, that person shall be held liable for all charges which result from the gas utility's efforts to stop the unauthorized use of gas.

If the premises served are unoccupied, the owner of the property shall be billed for gas used without application, and held responsible for payment of the bill, unless it appears a person other than the owner used the gas service, in which case the user shall be billed. If the owner is unable to identify the user, it shall be presumed that the owner was the user.

When the gas utility finds that gas is being used without proper application for service or service connection, the service may be discontinued, or disconnected, without notice. (Ord. C-5713 § 1 (part), 1981: prior code § 7461.2)

15.40.030 Credit—Establishment.

A. Each applicant for gas service is required to establish applicant's credit to the satisfaction of the gas utility. Applicant's credit will be deemed established for all classes of service:

1. If the applicant makes a cash deposit to secure the payment of any bills for service;

2. If the applicant furnishes another type of security satisfactory to the gas utility or furnishes a satisfactory bond approved as to form by the City Attorney, for the payment of bills for gas service; or

3. If the applicant's credit responsibility is satisfactory to the gas utility.

B. An applicant who has been a customer of the gas utility, and whose service has been discontinued for failure to pay bills for gas service, may be required to reestablish credit by making a cash deposit. (Ord. C-5713 § 1 (part), 1981: prior code 7461.3)

15.40.040 Credit—Deposits.

Whenever deposits are required to establish or reestablish credit, the following regulations shall apply:

A. Amount of Deposit. The amount of deposit to establish or reestablish credit is two (2) times the estimated average monthly billing, but in no case shall the amount be less than thirty-five dollars ($35.00).

B. Application of Deposits. Cash deposits shall be applied toward the payment of any gas bills whenever the customer has made satisfactory payment of gas utility bills for a period of one (1) year. Other types of security posted with the gas utility pursuant to Subsection A of this Section shall be returned to the customer, whenever the customer has made satisfactory payment of gas utility bills for a period of one (1) year.

C. Forfeiture of Cash Deposits. The balance of all cash deposits shall be forfeited if unclaimed by the customer within two (2) years from the date service is discontinued, provided proper notice has been sent to the customer at the last known address. (Ord. C-7019 § 3, 1992; Ord. C-5713 § 1 (part), 1981: prior code § 7461.4)

15.40.050 Termination of service.

A. When. Gas service may be discontinued or refused to any premises at which the customer may be receiving gas for any of the following named causes and under regulations as follows:

1. Nonpayment of Bills. Nonpayment of a bill in the following situations: Seven (7) calendar days after presentation of a shut-off notice. A customer's service may be discontinued if a bill for gas service furnished at a previous location is not paid within seven (7) calendar days after presentation of a shut-off notice.

2. Unsafe Apparatus. If any part of the customer's service, appliances or apparatus shall at any time be deemed unsafe, or if the utilization of gas by means thereof shall be prohibited or forbidden under the authority of any law, ordinance or regulation, or until the customer shall restore such part of the service, appliances or apparatus in good and safe condition and comply with all laws, ordinances and regulations applicable thereto.

The City does not assume the duty of inspecting the customer's services, appliances or apparatus or any part thereof, and assumes no liability therefor.

In the event that the customer finds the gas service or connections to be defective, he shall immediately notify the gas utility to this effect.

3. Noncompliance with Gas Utility Regulations. If the customer shall fail to comply with any of the provisions pertinent to gas meter location, piping, fixtures and appliances within five (5) days after notice. This notice may be dispensed with in the event of a dangerous condition on a customer's premises, or in case a customer is utilizing the service in such a manner as to be dangerous for occupants of the premises, thus requiring immediate discontinuance of service.

4. Abuse or Fraud. If the customer has received gas service at any premises supplied by the gas utility during a service period for which the bill is delinquent, or has made application by using any name or alias other than his true name, or otherwise has given false information in obtaining service for himself or another, and the bill for such service is delinquent.

5. Unsatisfactory Credit. If the customer's credit is deemed unsatisfactory because of insufficient or incorrect credit information, or a failure to make a deposit when a deposit is required.

B. Customer's Request.

1. A customer may have his service discontinued by notifying the gas utility at least three (3) working days in advance of the desired date of discontinuance, in which event he may be required to pay all charges until the date of discontinuance. In the event such notice is not given, such customer shall remain liable for all charges for service prior to discontinuance thereof, whether or not such customer is the actual user of such service. The utility will endeavor to effect the discontinuation on the requested date, however, three (3) working days will be given to complete the order.

C. Rules and Regulations. The City Manager, with the approval of the City Council by resolution, shall adopt, amend or repeal and the City Manager shall enforce rules and regulations for termination of gas service. Such rules and regulations shall establish the procedure for termination of gas service in accordance with the Public Utility Regulatory Policies Act of 1978 and the U.S. Department of Energy guidelines issued pursuant thereto. (Ord. C-7019 § 4, 1992; Ord. C-5713 § 1 (part) 1981: prior code § 7461.5)

15.40.060 Reconnection charges.

The following reconnection charges shall be collected in advance of service restoration:

A. If a meter has been turned off for any reason set out in this Code or to protect against perpetration of fraud or if service was discontinued at the request of the consumer because of changed operating conditions, the minimum charge will apply as given in the schedule of fees and charges.

B. It may become necessary to remove and reset a meter or otherwise alter a service facility to protect against abuse or fraud, or for any other reason set out in this Code. The estimated cost of the work is shown in the schedule of fees and charges. (Ord. C-5713, § 1 (part), 1981: prior code § 7461.6)

15.40.070 Payment of bills.

A. Payment Upon Presentation. Bills for gas service shall be rendered according to estimated usage or actual usage on the meter at regular intervals, and are due and payable upon presentation.

B. Responsibility. Removal bills, special bills, bills rendered on vacation premises, or bills rendered to persons discontinuing the service, shall be paid upon presentation. Bills for connection or reconnection of service, and deposit payments for reestablishment of credit, as required by the provisions of this Chapter and State law, must be paid before service will be connected or reconnected.

Two (2) or more adult persons receiving service in the same residence shall be jointly and severally liable for bills of service, deposits, reconnection charges, and related service charges, whether or not the City received a joint application, and shall be billed by means of a single periodic bill, mailed to the person on the application designated to receive the bill.

Service may be discontinued or denied at a premises where bills for service provided to a prior customer are still outstanding if it is determined by the City that the prior customer still resides at the same premises or that it can be shown that the new and prior customers occupied the premises during the period the bills were incurred.

C. The City may disconnect or refuse service to an applicant if the acts of the applicant or conditions upon the premises indicate that false, incomplete, or inaccurate information was provided to the City.

When bills are delinquent, or an applicant has prior delinquent bills, the utility may demand that the full amount of both delinquent and current bills be paid in full. (ORD-05-0004 § 1, 2005: Ord. C-5713 § 1 (part), 1981: prior code § 7461.7)

15.40.075 Refund of gas utility charges.

Unless expressly prohibited by any other law applicable to the City, money paid to the City by any person for gas service may be refunded to that person if it is determined by the General Manager of the gas utility that the refund is appropriate due to a billing error made by the City. The refund may be made by direct payment to the person or by a credit on that person's bill for gas service.

The conditions and time limitations for refunds in Chapter 3.48 of this Code apply to the refund of gas utility charges. (ORD-06-0011 § 7, 2006: Ord. C-6713 § 1, 1990)

15.40.080 Pipelines, meters and appliances.

All pipelines, meters, regulators, appliances, fixtures and other apparatus shall be installed and replaced under the following regulations, except as otherwise specified:

A. Meters, appliances, etc. All service pipe, meter set assemblies and related apparatus installed by the utility, upon or across any property or premises, for the purpose of delivering gas to consumers, shall remain the property of the City, and may be repaired, replaced or removed by the gas utility at any time.

The owner or occupant of any property or premises where such installation has been made shall exercise reasonable care to prevent the service pipes, meter set assemblies and other related apparatus of the City from being damaged, destroyed or obstructed; and, in case any defect therein or damage thereto shall be discovered, he or she shall promptly notify the gas utility thereof.

B. Meter Installation and Location. All meter set assemblies and related apparatus shall be installed by the utility and the owner of the property or premises shall provide a suitable and accessible location for same in accordance with applicable State and local building codes, and accessible at all times to properly authorized employees or representatives of the City.

No customer or owner shall construct any building, building addition, room or other obstruction over or around an existing meter location, or service line, or otherwise impair the accessibility at some later date, without first obtaining the approval of the City.

If a compartment is provided for housing the meter set assembly, related apparatus or any part thereof, it shall be used and occupied only and exclusively by and for such equipment.

C. Multiple Meter Installation and Location. In all buildings or locations where separate meters are required for purposes of individual gas accounting or in cases where separate meters are installed to better facilitate the operation of customers' appliances, all meters shall be located at a central accessible point, or as prescribed by the gas utility, and all house gas line inlets shall be properly identified, as prescribed by the gas utility.

No additional meter or meters shall be installed at any location with existing meter or meter set assembly in the event such existing meter or meter set assembly is installed contrary to any provision of this Chapter or other applicable ordinances or laws.

The individual house lines connected to the outlet of the meters in all locations where two (2) or more meters are installed to service different customers in the same building or groups of buildings shall not be so tied together or interconnected in such manner as to permit or cause a back pressure on any of the other meters that are installed to service other customers located on the same property.

D. Replacement of Meters. In the event of the replacement at the request of a customer of any meter for any reason other than as provided for in Section 5.40.100, a charge shall be based upon the schedule of fees and charges shall be levied. Replacement of meters on account of changes in tenants, customers, or gas consumption shall be made without cost. (Ord. C-5713 § 1 (part), 1981: prior code § 7461.8)

15.40.090 Meter reading and correction.

A. Meters will be read as nearly as possible at regular intervals; however, the City may also estimate the customer's utility usage for billing purposes on the basis of customer information including, but not limited to, the physical condition of the metering equipment, available meter readings, records of historical use, records of common usage by similar customers, and the general characteristics of the customer's past and present utility load and operation.

B. Standard delivery pressure shall be approximately one-fourth pound per square inch gauge pressure under normal operating conditions. Applications for pressure in excess of this amount may be approved by the gas utility. The gas utility reserves the right to vary, limit or reduce the amount of excess pressure supplied to a customer at any time and accepts no responsibility for any loss occasioned thereby. Except in cases of emergency or under conditions not within the control of the gas utility, reasonable notice will be given to customers of contemplated changes in delivery pressure.

C. Volumes of gas recorded by displacement meters measuring gas at pressures in excess of standard delivery pressure shall be corrected on the basis of data issued by the Southern California Meter Association, as revised from time to time and currently in effect at time of delivery.

D. Volumes of gas measured by orifice meters will be computed on the basis of the procedures set forth in the American Gas Association "Report No. 3" as revised from time to time and currently in effect at time of delivery.

E. Bills for services shall be rendered at regular intervals of time approximately one (1) month, commonly called "monthly", except in those cases where the gas utility shall prescribe another billing interval.

F. Reading of separate meters not combined. For the purpose of determining charges for gas consumption, all meters upon the customer's premises shall be considered separately, and the readings thereof shall not be combined; provided, however, the gas utility may, for operating purposes, install more than one (1) meter where the service falls under but one (1) rate schedule, in which event the reading of the meters shall be combined

for the purpose of determining charges for gas consumption. (ORD-05-0004 §§ 2, 3, 2005; Ord. C-7019 §§ 5, 6, 1992; Ord. C-5713 § 1 (part), 1981; prior code § 7461.9)

15.40.100 Meter tests.

A. All meters shall be tested prior to their installation into service, and no meter shall be placed in service or be allowed to remain in service following any test which has an error in excess of two (2) per centum under conditions of normal operation. Meters removed from service shall be randomly tested at the reasonable discretion of the gas utility.

B. Any customer may, upon not less than five (5) days' notice to the gas utility, require a test of his or her meter. When a customer requests a meter test within five (5) years after date of installation or change of the meter, a deposit to cover the cost of the test shall be required. The amount of this deposit shall be in accordance with that given in the schedule of fees and charges. The amount so deposited plus the amount of the overcharge computed in accordance with Section 5.40.110 shall be returned to the customer if the meter is found, upon test, to register more than two (2) per centum fast under conditions of normal operation.

C. A customer shall have the right to require the test to be conducted in his presence or in the presence of an expert or other representative appointed by him/her.

D. Within a reasonable time after completion of the test, a report giving the name of the customer requesting the test, the location of the premises where the meter had been installed, the number of the meter, the date of removal, the date tested, and the result of the test shall be supplied to the customer, by the gas utility. (ORD-15-0021, § 1, 2015; Ord. C-5713 § 1 (part), 1981; prior code § 7461.10)

15.40.110 Adjustment of bills for meter error.

Whenever a meter which has been in service is tested and such meter is found to be more than two (2) per centum fast, a refund to the customer or a credit to his/her account will be made of the overcharge, based on the corrected meter readings for the period, not to exceed six (6) months, for which the meter was in use. If it can be shown that the registration error was due to some cause certain, the approximate date of which can be established, the overcharge shall be computed back to, but not beyond, such time. In either case no refund or credit will be made wherein the overcharge is less than one dollar ($1.00) to any one (1) account. If a meter, upon test as herein provided, is found not to register, or to register more than twenty-five (25) per centum slow under conditions of normal operation, a bill for the undercharge may be rendered to the customer. The undercharge shall be based on the estimated volume of gas consumed for the period immediately preceding the replacement of the meter, not to exceed six (6) months. If it can be shown that the registration error was due to some cause certain, the approximate date of which can be established, the undercharge shall be computed back to, but not beyond, such time. (Ord. C-7019 § 7, 1992; Ord. C-5713 § 1 (part), 1981; prior code § 7461.11)

15.40.120 Notices.

Any notice to a customer may be given by written notice, either delivered personally to the customer or enclosed in a sealed envelope and deposited in the United States Mail in the City, postage prepaid, addressed to the customer at the customer's address specified in the customer's application for service of gas, or in the customer's contract in case such customer has a contract for gas service, or at such address as may be subsequently given therefor by the customer to the gas utility. (Ord. C-5713 § 1 (part), 1981; prior code § 7461.12)

15.40.130 Gas pipeline extensions.

All gas pipeline extensions shall be installed under the following regulations:

A. General requirements.

1. When an applicant requests that the gas utility extend a gas pipeline, applicant shall, prior to the commencement of any work, pay all fees

applicable to the estimated footage of such extension in accordance with the schedule of fees and charges.

2. If the actual footage of the gas pipeline extension differs from the estimated footage, then the fees due under the schedule of fees and charges shall be adjusted accordingly, and excess fees shall be refunded to the applicant without interest or applicant shall promptly pay any additional fees, as applicable.

3. If the gas pipeline extension project is cancelled, then the gas utility shall refund to the applicant those fees, without interest, which do not cover costs actually incurred by the gas utility prior to the cancellation.

4. The right to a refund of any fees paid pursuant to this Section shall not be assigned except upon the prior written consent of the gas utility, and the gas utility may refuse to refund any such fees to an assignee of the applicant where such consent to the assignment thereof was not first obtained.

5. If an applicant's pipeline extension project is rescheduled or delayed, the gas utility shall have the right to revise its fee estimate based on the most current schedule of fees and charges.

6. All work on gas pipelines shall be by the gas utility or by a contractor approved and qualified by the gas utility, and such work shall be in accordance with gas utility standards and specifications.

7. The gas utility, at its own cost and expense, shall safely operate and maintain the gas pipeline.

8. All gas pipelines and appurtenances on public or private property installed under this Section, up to and including the meter set assembly, shall be the property of the City, and may be repaired, replaced or removed by the gas utility at any time.

B. Technical requirements.

1. The gas utility shall, except in very unusual cases, extend its gas pipelines only in public highways, streets or alleys. Such pipelines shall be installed along the most practical route from a point of service selected by the gas utility to a point directly opposite the meter locations satisfactory to the gas utility to service the applicant. Gas pipelines shall be installed upon private property only in the most unusual cases and if the terms and provisions of the right-of-way agreement and the cost of the right-of-way are satisfactory to the gas utility.

2. The gas utility shall design the most practical route on public streets from an existing pipeline to where the new pipeline will be most useful to the applicant.

3. The gas utility shall, at the applicant's expense, design, furnish and install a pipeline of suitable capacity, extending from a gas main to the meter location of the premises to be served. The applicant shall furnish on the premises to be served an accessible meter location satisfactory to the gas utility. The gas utility reserves the right to choose the point on the premises where service will be provided.

4. Whenever an application is made for gas service to premises that have been resubdivided from that shown in the original subdivider's plat and it is found necessary to install a pipeline in addition to that which would have been required to serve the premises as originally platted, the gas utility shall, at the applicant's expense, install and maintain the individual pipeline required to serve such premises.

5. Whenever an application is made for gas service at a location not in conformance with this Section and an individual pipeline extension is required in excess of that originally installed or planned to serve the premises, the gas utility may at its option install the additional pipeline provided the applicant shall advance the entire cost of such additional pipeline.

6. Stub services, i.e., services laid in public streets extending from the main to a point without a meter assembly, shall be installed at the sole and absolute discretion of the gas utility.

7. In the event an applicant for gas service to a premises, to which the gas utility already has and maintains an adequate stub serving such premises, locates buildings, concrete pavement or other improvements in such a manner as to render the use of such stub service impossible, the gas utility

shall require the applicant to pay the fee for installing additional service from the main to the meter of the premises to be served.

8. Branch services, i.e., services which extend from another service to applicant's meter or meters, shall be installed only at the sole and absolute discretion of the gas utility.

9. The gas utility shall not, except in very unusual cases, install, extend, renew or replace any gas pipeline which is located under any portion of a building. No person shall, except in very unusual cases, erect, construct, place, replace, build or rebuild any building over a pipeline through which gas can flow. In very unusual cases, a pipeline may be installed under a building provided such pipeline is enclosed within a gas-tight metal casing installed at the expense of the applicant and approved by the gas utility in its sole and absolute discretion. If the pipeline enclosed within a casing or the casing needs to be repaired the cost of such repair will be borne by the applicant.

10. In case it shall be necessary to extend a pipeline across private property other than the property of the applicant, the applicant shall first secure and furnish, without cost to City, the meter location and the rights-of-way necessary for such pipeline satisfactory to the gas utility. If rights-of-way are satisfactory to the gas utility, the gas utility shall extend a pipeline to the meter location of the applicant in accordance with this Section. In the event such rights-of-way shall in any instance be revoked, the gas utility may discontinue the supply of gas without obligation or liability. When the extension of pipeline is made in the manner above provided and subsequent to the date service is first rendered to the customer, the gas utility installs in a public street a distribution main pipeline from which service can be rendered to the customer, the customer shall thereafter take service from the distribution main pipeline.

11. When meter, or meters, have been installed in locations which are not in conformance with the requirements of this Section and any applicable ordinances of the City because of new construction, alterations or additions upon the premises, the gas utility may require the owner or customer to relocate the house piping connection or connections in such a manner as to permit the receiving of gas at an accessible meter location that does conform to the requirements of this Section and any applicable ordinances of the City. The gas utility reserves the right to relocate the pipeline at the customer's expense and provide facilities for the service of gas at any location on the premises to be served that it so desires, and where more than one (1) adequate gas service exists on a premises, the gas utility shall have the right to continue or discontinue whichever service it chooses.

12. The customer and owner shall exercise reasonable care and cooperation in furnishing and maintaining an adequate space or location for the installation, renewal, repair or replacement of the gas pipeline.

13. When performing work on customer's premises the gas utility will at all times exercise reasonable care to protect customer or owner's property from unnecessary damage or destruction. However, the gas utility assumes no responsibility for the replacement or repair of any surfacing or other improvements broken, damaged or destroyed in the due course of installing or relocating gas pipeline or other gas facilities located on customer's premises when such installation or relocation work is being done on the request or application of the owner or customer or when changes in the gas facilities are made necessary due to new construction, alterations or additions upon the premises. The gas utility may at its option replace any surfacing broken or damaged on customer's premises in the due course of repairing, replacing or relocating the gas pipeline or other gas facilities due to deterioration, leakage, stoppage or any other natural cause. The gas utility assumes no responsibility for future inspection or maintenance of any surfacing repairs or replacements which it may make on customer's premises and therefore accepts no liability.

14. All pipe beyond the outlet connections of the meter, master meter, or bank of meters, shall be maintained by applicant, customer and the owner of the premises, and the gas utility shall not be responsible for any loss of gas or any loss or damage whatsoever caused by or arising out of, or

in connection with pipe or equipment installed beyond the outlet of the gas utility's meter, master meter or bank of meters.

15. If an applicant requests relocation of a pipeline for purposes benefiting the applicant, then the costs for removal and relocation will be the responsibility of the applicant.
(ORD-09-0012, § 1, 2009; Ord. C-5713 § 1 (part), 1981; prior code § 7461.13)

15.40.140 Reserved.

Editor's note—ORD-09-0012, § 2, adopted Apr. 21, 2009, repealed § 15.40.140, which pertained to "service extension-generally" and derived from Prior code § 7461.14; and Ord. C-5713 § 1 (part), 1981.

15.40.150 Reserved.

Editor's note—ORD-09-0012, § 3, adopted Apr. 21, 2009, repealed § 15.40.150, which pertained to "stub service" and derived from Prior code § 7461.15; and Ord. C-5713 § 1 (part), 1981.

15.40.160 Compensation for damages.

In the event property of the gas utility is damaged as the result of negligence or any unlawful act or omission on the part of any person, or property owner, such person causing such damage or the property owner shall pay to the gas utility all costs incurred in restoring or replacing such property including, but not limited to loss of service, supplies and labor costs. (Ord. C-5713 § 1 (part), 1981; prior code § 7461.16)

15.40.170 Temporary service.

Temporary service, as herein considered, refers to service to circuses, bazaars, fairs, temporary restaurants, construction works and enterprises of a temporary nature. The gas utility may, at its option furnish temporary service under the following conditions:

A. The applicant for such temporary service shall pay to the gas utility, in advance or otherwise as the gas utility may elect, the net cost of installing and removing any facilities necessary in connection with the furnishing of such service by the gas utility.

B. Each applicant for temporary service shall deposit with the gas utility a sum of money equal to the estimated amount of the bill for such service, or to otherwise secure, in a manner satisfactory to the gas utility, the payment of any bills which may accrue by reason of such service so furnished or supplied.

C. Nothing herein shall be construed as limiting or in any way affecting the right of the gas utility to collect of the customer any other or additional sum of money which may become due and payable from the customer by reason of the temporary service furnished, or to be furnished, hereunder. (Ord. C-5713 § 1 (part), 1981; prior code § 7461.17)

15.40.180 Supply to separate premises and resale of gas.

Where the gas utility has adequate service facilities to supply separate premises, such separate premises, even though owned by the same customer, shall not be supplied with its gas through one and the same meter without approval of the gas utility. (Ord. C-5713 § 1 (part), 1981; prior code § 7461.18)

15.40.190 Right of ingress and egress.

The City shall at all times have the right of ingress to and egress from the customer's premises at all reasonable hours for any purpose reasonably connected with the furnishing of gas and the exercise of any and all rights secured to it by law.

Any person who wilfully and unlawfully prevents or causes to prevent the City from exercising its rights of ingress to and egress from the customer's premises, as set forth above, shall be guilty of a misdemeanor. (Ord. C-5713 § 1 (part), 1981; prior code § 7461.19)

15.40.200 Customer's responsibility for equipment.

The customer shall bear all risk and expense and shall be responsible to install and keep in good and safe condition, all piping and equipment required beyond the gas utility's meter for receiving gas from the gas utility, and for utilizing such gas including all necessary protective appliances, and the gas utility shall not be responsible for any

loss or damage occasioned or caused by negligence, want of proper care, or wrongful act of the customer or customer's agents, employees, or licensees on the part of the customer installing, maintaining, using, operating, or interfering with any such regulators, service pipes, gas mains, appliances, fixtures or apparatus. (Ord. C-5713 § 1 (part), 1981; prior code § 7461.20)

15.40.210 Installation and modification of service connections.

Only duly authorized employees or agents of the gas utility shall be authorized, permitted or allowed to connect the customer's service to or disconnect the same from the gas utility's gas mains; and such connection or disconnection shall be deemed to include, but without excluding other means or methods of connection or disconnection, the turning on or off of any valve so as to permit the flow or passage or to stop the flow or passage of gas through any meter or into the house lines, fixtures and consumption outlets on customer's premises or elsewhere, except only in case of emergency such as fire, earthquake or other similar occurrences. Cost of reinstallation or remedial work made necessary by unauthorized additions, modifications or removals shall be paid for by the customer. (Ord. C-5713 § 1 (part), 1981: prior code § 7461.21)

15.40.220 Change of customer's appliances.

In the event that the customer shall make any material change either in the number or character of the gas appliances installed upon his premises to be supplied with gas by the gas utility, the customer shall within thirty (30) days of installation of these appliances give the gas utility written notice of this fact. (Ord. C-5713 § 1 (part), 1981: prior code § 7461.22)

15.40.230 Tampering with or tapping service pipes, meters, etc.

No person shall wilfully break, dig up, obstruct, tamper with or injure any meter, regulator, service pipe, or other pipe or main, appliances, fixtures or other apparatus used in connection with conducting, serving or measuring of gas, and no person shall wilfully, with intent to injure or defraud, make use of, or use any pipe or conduit in connection with any main, service pipe or other pipe or conduit owned, installed or controlled by the utility under any of the provisions of this Chapter or any other ordinance of the City, for the purpose of conducting or supplying gas, in such manner as to supply gas to or permit the consumption of gas by or at any burner or outlet by or at which gas is consumed or is otherwise used or wasted, without passing through any meter provided for measuring and registering the quantity of gas passing through such pipe, tube or conduit, or wilfully act in any other manner so as to evade or cause the evasion of payment therefor; and no person, with like intent, shall tamper with, injure or alter any gas meter or regulator or obstruct its action. (Ord. C-5713 § 1 (part), 1981: prior code § 7461.23)

15.40.240 Usage of service detrimental to others.

The gas utility shall not furnish service to gas apparatus or appliances, the operation of which will be detrimental to the gas service being furnished to customers in the immediate vicinity or supplied from the same distribution system. The gas utility shall refuse to continue furnishing gas to any customer who uses an air blast apparatus without a check valve to prevent the possible return of air into the main, or who uses burners containing devices which may put a vacuum on the meter or gas system, or who uses gas at an unreasonably high rate during peak hours, or who, after being notified to discontinue the use of gas, shall continue to use the same. (Ord. C-5713 § 1 (part), 1981: prior code § 7461.24)

15.40.250 Authorization to operate within City.

No person except the City or any of its departments or divisions shall be authorized to do any of the following without a written permit contract, or franchise specifically authorizing same from the City:

A. To erect, construct, operate or maintain or use any natural gas pipeline, plant, meter, sys-

tem, gasworks, or gas distribution system or facility within the City in order to sell, transport or distribute or provide nonmunicipal natural gas or gas transportation to any natural gas user, transporter, or consumer within the City;

B. To interconnect any building, structure or facility of any kind to any natural gas pipeline or system of the City;

C. To acquire any natural gas pipeline, plant, meter, system, gaswork, or gas distribution system or facility within the City in order to sell, transport or distribute or provide nonmunicipal natural gas or gas transportation to any natural gas user, transporter, or consumer within the City. (Ord. C-7019 § 8, 1992)

CHAPTER 15.44 PIPELINES AND UTILITIES*

15.44.010 Definitions.

For the purpose of this Chapter, unless the context clearly requires a different meaning, the words, terms and phrases set forth in this Section are defined as follows:

"Applicant" means any person who applies for a permit under this Chapter.

"City" means the City of Long Beach, acting by and through the City Council.

"City property" means "streets," as that term is defined in Section 1.08.130, and lands (except Water Department lands and lands in the harbor district) and structures owned or controlled by the City within the City.

"Facilities" means pipes, pipelines, conduits, ducts, tunnels, poles, pole lines, cables, wires, vaults, traps, manholes, appliances, attachments and appurtenances used in connection therewith, for the purpose of the transmission, transportation or conveyance of any liquid or gaseous substance or substances, steam air, electrical energy, or for communication purposes, or for the purpose of providing housing or protection for interior lines used, intended to be, or capable of being used for such purpose or purposes, excepting, however: (1) sewers owned or operated by the Los Angeles County sanitation district or successor, the County of Los Angeles, the City of Signal Hill and the City of Lakewood; (2) public utility service connections; (3) water sprinkler systems; (4) storm drain pipes; (5) reclaimed water lines; (6) any subsurface installation required to be installed by a subdivider; (7) water lines owned or operated by the Metropolitan Water District of Southern California, the City of Signal Hill and the City of Lakewood; and (8) as to a public utility holding a valid and effective franchise form the City, any of the aforementioned facilities set forth in its franchise, whether the franchise authorizes construction, maintenance or operation of the facilities only in public streets and ways or both in public streets and ways in other public property.

"Governmental agencies" means the United States of America and its agencies and instrumentalities, the State, its political subdivisions, agencies and instrumentalities, this City, other cities and their departments, divisions and boards, other public agencies, and districts created by State law.

"Hazardous liquid pipeline" means a pipeline which carries those substances subject to and as defined in Part 195 of Title 49 of the Code of Federal Regulations (transportation of hazardous liquids by pipeline) and as said part is amended from time to time.

"Permit" means the written, typewritten, or printed permission issued to an applicant by the City under the authority of this Chapter and conditioned as provided in this Chapter, and means and includes any amendment or supplement to the permit.

"Permittee" means any person to whom a permit has been granted and issued under and pursuant to the terms of this Chapter and includes the assignee, or successor in interest thereof, when the assignment or transfer has been approved as provided in this Chapter.

"Person" means and includes an individual; a receiver; a trustee; a copartnership; joint ventures; a firm; an unincorporated association; a syndicate; a club; a society; a trust; a private corporation; a public corporation; a municipal corpora-

*Note—Prior ordinance history: Prior code §§ 7560 and 7560.1—7560.23 and Ords. C-5690, C-5887, C-5916 and C-6023.

tion or board, commission or department thereof; a County, a State, a national government; a municipal, County, State or federal agency, board or commission; a water district; a utility district; a political subdivision; a school district; and a drainage, sanitation, sewer maintenance, sanitary irrigation, levee, reclamation, water conservation or flood control district, whether acting for himself/herself, itself or in any representative capacity.

"Pipeline" means any underground pipe, tunnel, or duct used, designed or intended to be used for transmitting or transporting substances by means of pressure or vacuum except sewers, storm drains, and conduits for housing lines for transmission of electrical energy.

"Public utility service connection" when used in this Chapter applied to water and gas utilities means that connection from the distribution system of the utility to the property line of the property to be served.

"Sewer" means any underground pipe, conduit, tunnel, or duct used or designed or intended to be used to transport surplus industrial or other waste material but not including water or waste material originating from oil wells or other material not acceptable in a public sewer.

"Storm drain" means any pipe, conduit, tunnel, duct, or appurtenance thereto intended for the reception and transfer of stormwater, groundwater, or roof or yard drainage. (ORD-06-0054 § 1, 2006: Ord. C-7868 § 1, 2003: Ord. C-6398 § 1 (part), 1987)

15.44.020 Use of City property prohibited.

Except in accordance with the terms and subject to the conditions of this Chapter no person except the City or any of its departments or divisions shall use or occupy City property for the purpose of laying, installing, maintaining or operating facilities therein. (Ord. C-6398 § 1 (part), 1987)

15.44.030 Permit—Required.

No facilities shall be laid, installed, maintained, or operated in any City property other than by the City unless the person desiring to lay, install, maintain, or operate the facilities is entitled to use the City property by reason of the following:

A. A valid property right based on a conveyance under the laws of this State or the United States; or

B. A valid franchise; or

C. A revocable permit or permit supplement issued pursuant to this Chapter, or an unrevoked permit issued pursuant to Ordinance No. C-2843 or Ordinance No. C-2998 prior to their repeal. (Ord. C-7868 § 2, 2003: Ord. C-6398 § 1 (part), 1987)

15.44.040 Permit—Application.

A. An applicant for a permit or permit supplement under the terms of this Chapter shall file a written application therefor with the Department of Public Works on forms to be provided by the City, which application shall be in duplicate. The application shall show:

1. Name and address of the applicant;

2. If other than an individual, the form or type of organization, with names and addresses of officers, partners, or firm members;

3. Route of proposed installation and general description of type of facilities to be installed. If the installation is for a pipeline, or subsurface conduit for protection of interior lines for transmission of electrical energy, the applications shall show the size and type of pipe or conduit material as well as the location of valves, vaults, the type of cathodic protection and special features. If the application is for a pole line, it shall show the number of poles, the distance between poles, diameter and height of poles and a general description of the wires or other equipment to be located thereon;

4. Description of what is to be transmitted, transported or conveyed thereby;

5. Description of type of coating, housing, or other protective features, if any.

B. Applications filed under Subsection 15.44.030.A of this Section shall be accompanied by maps or drawings, or prints thereof, in sextuplicate, showing the location of the proposed

installations and if for a pipeline or protective conduit, showing dimensions and size of pipe or conduit material, length thereof, dimensions and locations of vaults, valves and all connected appliances. All drawings, maps or prints submitted for any hazardous liquid pipeline shall be signed by a registered civil and/or mechanical engineer. If for a pole line, the maps shall show dimensions and height of poles, depth to be set in the ground, location of each pole, the distance between the existing ground surface or improvements and bottom of the transmission lines, and of any incidental facilities to be installed therewith. The maps shall be drawn to a scale of not more than forty feet (40') to the inch and all prints thereof shall be to this scale. (Ord. C-6398 § 1 (part), 1987)

15.44.050 Permit supplement—Application.

Any person holding a valid and effective permit issued pursuant to the terms of this Chapter or pursuant to Ordinance No. C-2843 or C-2998 prior to their repeal, may, in accordance with the procedure provided in Section 15.44.040, obtain a supplement thereto for the purpose of: (a) installing additional facilities; (b) changing location of existing facilities; or (c) abandonment of existing facilities. (Ord. C-6398 § 1 (part), 1987)

15.44.060 Permit—Issuance.

On receipt of an application for a permit or permit supplement, the City Council or the Director of Public Works, as described below, shall determine whether or not the granting of a permit as sought or a modification thereof will not be contrary to the public interest, after which the City shall issue a written permit or permit supplement which sets forth any special conditions imposed by the City Council on the permittee or the facilities. Except as described elsewhere in this Section, the City Council shall have the power to determine when the granting of a permit or permit supplement will or will not be in the public interest and its determination shall be final. With respect to groundwater monitoring wells, water lines, and sewer lines, the determination whether or not granting a permit is in the public interest may be made at the discretion of the City's Director of Public Works, who may issue a permit or permit supplement. (ORD-06-0054 § 2, 2006: Ord. C-7868 § 3, 2003: Ord. C-7767 § 1, 2001: Ord. C-6398 § 1 (part), 1987)

15.44.070 Conditions for use of City property.

Facilities laid, installed, maintained or operated in any City property, whether or not pursuant to a permit issued under this Chapter, shall conform to the following terms and conditions:

A. Material used. All facilities not specifically provided for in this Section shall be constructed of materials which are new or in such condition as, in the opinion of the Director of Public Works, will assure satisfactory service and durability in accordance with the purpose of the intended use.

B. Liquid petroleum transportation piping systems. All materials used in construction of liquid petroleum transportation piping systems shall comply with all applicable federal and State regulations.

C. Electrical surface facilities. All facilities constructed or maintained above the surface of the ground and used or intended to be used for transmission of electrical energy shall comply with the rules for overhead electric line construction contained in General Order Number 95 of the California Public Utilities Commission or such other Statewide regulatory provisions applicable to overhead lines as may hereafter be placed in effect by the Commission or any other regulatory body or official as hereafter is charged with the duty of regulation of electric and communications utilities on a Statewide basis throughout California.

D. Electrical subsurface facilities. All facilities constructed or maintained below the surface of the ground and used or intended to be used for transmitting electrical energy shall be such as shall not be in violation of any State law governing such installations and before being installed detailed specifications therefor shall be submitted to and approved by the Director of Public Works.

E. Connections to facilities. No person maintaining facilities in City property shall allow or permit any facilities belonging to another person to be connected thereto in any City property unless the owner of the connecting facilities is authorized to occupy the City property with the facilities under the terms of this Chapter.

F. Cable communications systems surface and subsurface facilities. All facilities constructed or maintained above the surface or below the surface of the ground and used or intended to be used for the transmission of cable communications shall be in compliance with all conditions and terms contained in Chapter 15.74 of this Code. (Ord. C-6398 § 1 (part), 1987)

15.44.080 Time limit to commence work.

The work of constructing or installing any facilities authorized by any permit, or permit supplement, pursuant to the terms of this Chapter shall be commenced within ninety (90) days from the date of granting the authority therefor; provided, however, that the Director of Public Works may, for good cause, grant an extension of time; and shall be diligently prosecuted until concluded. (Ord. C-6398 § 1 (part), 1987)

15.44.090 Compliance required.

No person shall fail, refuse, or neglect to comply with any requirement of this Chapter. All permits and permit supplements issued pursuant to this Chapter or issued pursuant to Ordinance No. C-2843 or C-2998 prior to their repeal, for any of the purposes set forth in Section 15.44.020 except an ordinance granting a franchise, shall be upon the terms and conditions as provided in Section 15.44.070, which shall be either set forth in each permit and permit supplement or referred to therein. (Ord. C-6398 § 1 (part), 1987)

15.44.100 Permit fees.

A. Each permit and permit supplement issued pursuant to this Chapter shall be subject to the condition and shall provide that the permittee, as and for compensation for use of City property, shall pay to the City annually in advance, on a calendar year basis except as otherwise stated herein, fees as follows:

1. Water, Wastewater, Oil, Gas, Sewer, Gasoline, Electrical Energy, Communications, and Liquefied Petroleum Gas Pipelines.

Pipe Size (Internal Diameter)	Base Rate (Per Lineal Foot)
0—4"	$0.232
6"	0.352
8"	0.471
10"	0.584
12"	0.703
14"	0.823
16"	0.935
18"	1.055
20"	1.174
22"	1.287
24"	1.406
26"	1.526
28"	1.638
30"	1.758

For pipelines with an internal diameter not listed herein, the fees shall be in the same proportion to the fees of a twelve inch (12") diameter pipe as the diameter of the unlisted pipe is to twelve inches (12").

The annual payment for each lineal foot of pipeline shall be computed and revised each calendar year as follows:

a. The applicable base rate shall be multiplied by the Consumer Price Index for owner's equivalent rent of primary residence in Los Angeles, California published by the United States Department of Labor, Office of Information, for the month of September immediately preceding the month of January in which payment shall be due and payable, and divided by the Consumer Price Index for owner's equivalent rent of primary residence in Los Angeles, California, 1984 which is 100.0. Under no circumstances shall the multiplying factor be less than one (1).

b. If the United States Department of Labor, Office of Information, discontinues the preparation and publication of a Consumer Price Index for owners' equivalent rent of primary residence in Los Angeles, California, and if no transposition table prepared by the Department of Labor is

available so as to make those statistics which are then available applicable to the Index of December, 1984, then the City Council shall prescribe a rate of payment which shall, in its judgment, vary from the rates specified in this Subsection in approximate proportion as commodity consumer prices then current vary from commodity consumer prices current in December, 1984. Upon this point the determination by the City Council shall be final and conclusive. (ORD-06-0054 § 3, 2006: Ord. C-7868 § 4, 2003: Ord. C-6398 § 1 (part), 1987)

15.44.110 No bonds or insurance for governmental agencies.

Governmental agencies shall not be required to file the bond or policy of public liability insurance required by this Chapter. (Ord. C-7868 § 5, 2003: Ord. C-6398 § 1 (part), 1987)

15.44.120 Relocation of facilities.

Whenever the rearrangement or relocation of any facilities installed or maintained in City property is required by reason of a change of the grade, laying of any sewer, storm drain, water, gas or other pipeline or conduit installed for a public service, or making of any other public improvement, the owner thereof shall, within sixty (60) days after written notice from the Director of Public Works (or such other time limit as may be specifically provided in any applicable franchise ordinance), rearrange or relocate the same to accommodate the public improvement at its own cost and expense, and to the satisfaction of the Director of Public Works. If the owner has not complied with the written request within sixty (60) days after the notice is given (or within such other specific time limit), then the Director of Public Works may cause the work required to be done. In such event he shall keep an itemized account of the cost thereof and shall render a bill for the amount thereof plus twenty-five percent (25%) of overhead to the owner. Acceptance of a permit or permit supplement pursuant to this Chapter, or pursuant to Ordinance C-2843 or C-2998 prior to their repeal, constitutes a contract by the owner to pay to the City any such amount so incurred within fourteen (14) days after presentation of a bill therefor. If any portion of said bill is not paid within fourteen (14) days after presentation, there shall be on the fifteenth day attached to said unpaid portion of the bill a penalty at the rate of eighteen percent (18%) per annum for each day the payment on the unpaid portion of the bill remains unpaid between the date of presentation and the date of payment. If the payment on the unpaid portion of the bill is not made within sixty (60) days from the date of presentation, there shall, on the sixty-first day, be attached in addition to the aforesaid penalty an additional penalty of fifty percent (50%) of the unpaid portion of said bill.

Any penalty under one hundred dollars ($100.00) shall be added to the annual permit fee payable in the succeeding calendar year. The fact that the facilities have been installed pursuant to other authority shall be no defense to compliance with this Chapter by the owner of the facilities. (Ord. C-6398 § 1 (part), 1987)

15.44.130 Identification of facilities.

All valves and gates, whether boxed or exposed, poles and pipes which are exposed on structures installed or maintained in City property shall bear a distinguishing mark, either by stenciling in the case of pipes, or by means of a metal tag attached to poles and, with wire to gates and valves, with the name and telephone number of the owner and name of the material carried therein stated thereon. Should the City prescribe a code system for designating the material carried, then the code may be used therefor. (Ord. C-6398 § 1 (part), 1987)

15.44.140 Repairs to facilities.

Whenever any "facility", as defined in Section 15.44.010, is used for the transportation of liquids, vapors, or gases and the facility permits the escape of the contents therefrom, it shall be the duty of the person owning, using, or controlling the facility to immediately notify the City Fire Department and make provisions to ensure that the situation is safe. This includes, but is not lim-

ited to, containment, pump shut down, valve closures and evacuation. After the situation is controlled the permittee owning, operating or controlling the facilities shall repair the facility to ensure the future safe operation of the facilities and also to make such cleanup and repair of City property as is required by the Director of Public Works. No person shall fail, refuse or neglect to comply with any requirement of this Section. (Ord. C-6398 § 1 (part), 1987)

15.44.150 Abandonment of facilities.

A. Whenever any person, who has installed or has been maintaining in City property any facilities, desires to abandon all or any portion thereof, an application therefor shall be filed with the City. The application shall set forth the route or location of the facilities and whether the person desires to abandon the facilities in place or to remove them. In the event the person desires permission to remove all or part of the facilities, the City shall determine whether the removal may be safely effected without detriment to the public interest or under what conditions the removal may be safely effected. In the event the City specifies conditions pursuant to which the facilities may be removed, the person shall be authorized to so remove only in the event all the conditions so imposed are carried out to the satisfaction of the Director of Public Works. Otherwise the removal shall not be permitted.

B. In the event the person desires permission to abandon the facilities in place, the City shall determine whether the abandonment in place of all or part of the facilities may be permitted without detriment to the public interest. The City may specify conditions for the abandonment in place of the facilities and the conditions shall be fully complied with to the satisfaction of the Director of Public Works before the facilities shall be considered abandoned. Until so abandoned, fees applicable thereto shall continue to accrue.

C. All pipelines shall be abandoned in the manner required in this Section upon termination, expiration or upon the permanent suspension of use by the permittee. (Ord. C-7312 § 4, 1995; Ord. C-6398 § 1 (part), 1987)

15.44.160 Removal or disconnection of unauthorized facilities.

Whenever any person has facilities located on City property and therefore has a right to maintain the facilities either pursuant to a franchise or permit issued pursuant to this Chapter, which right has been terminated for any cause, or whenever any person who had facilities located on or in City property on or before July 1, 1952, has failed to obtain the right to maintain the facilities on or in the City property after October 1, 1952, and the person has for a period of sixty (60) days following the written notification of said termination failed to comply with the termination or failed to obtain a right to maintain the facilities on or in the City property, then the Director of Public Works shall make every effort to locate the facilities and either remove from City property or effectively sever the facilities at the point at which they enter City property so that they cannot be utilized for the purposes for which intended without reconnection after a proper permit or franchise has been obtained. (Ord. C-6398 § 1 (part), 1987)

15.44.170 Abandonment in place of City's facilities.

When municipally owned or operated facilities must be removed in connection with public improvements, the cost of the removal shall be paid by the municipal department the facilities of which are required to be so removed. (Ord. C 6398 § 1 (part), 1987)

15.44.180 Permit—Revocation.

A. Any permit issued pursuant to this Chapter may be revoked by the City Manager, after finding the existence of any of the following grounds for revocation: (1) failure by permittee to comply with the requirements of the permit or of this Chapter, (2) neglect or refusal by a permittee to comply with, or violation of, the provisions of this Chapter or other ordinances or laws, directly or indirectly incidental to the operations of the

permit, (3) misrepresentations of facts, reports or records furnished by a permittee and required under this Chapter, (4) operations by a permittee endangering public health and safety by not complying with applicable local, State or federal pipeline safety and environmental regulations.

B. The City shall have the power to determine when an existing permit or permit supplement shall be revoked as a result of the permittee failing to comply with applicable local, State or federal pipeline safety and environmental regulations. A determination by the City Manager that any such permit or permit supplement should be revoked based on Subsection A of this Section, shall be final unless an appeal therefrom is taken, and a permittee served with written notice of a final order revoking and terminating such permit or permit supplement shall have ninety (90) days after service of the notice in which to abandon or remove facilities in accordance with the provisions of this Chapter and any other applicable ordinance of the City. Any permittee dissatisfied with an order of the City Manager revoking and terminating its permit or permit supplement may, within fifteen (15) days after receiving said written notice of final order of revocation and termination, appeal to the City Council by filing written notice of the appeal with the City Clerk. Upon receipt of the notice of appeal, the City Council shall set a date for hearing thereon not less than ten (10) days nor more than thirty (30) days thereafter. Permittee shall be notified in writing by the City Clerk of the date, time and place of the hearing. At the time set, the City Council shall hear the permittee, City Manager, and other interested persons and may either affirm or annul the City Manager's order. The decision of the City Council shall be final.

C. Any permit or permit supplement revoked solely for failure to comply with the requirements of Sections 15.44.190 or 15.44.230 may be reinstated only upon application therefor showing compliance submitted to and approved by the City Manager and upon the payment of ten dollars ($10.00) per day for every day of noncompliance and also upon payment of all sums due and unpaid to the City under the provisions of Section 15.44.100.

D. Upon a failure of the permittee to comply with the provisions of Sections 15.44.190 or 15.44.230, the City may notify the permittee in writing of the default and specify the time within which the default is to be remedied. If the permittee fails or refuses to remedy the default within the period of time specified, the right of permittee to use the facility or facilities shall cease and the City shall have the right to sever the facility or facilities at the point where the facility or facilities enter upon the place authorized to be used. The permittee shall reimburse the City for any expense incurred by the City in severing the facility or facilities. Should the permittee continue to use the facility or facilities after the right to use them has been terminated and should the City file suit to restrain the use of the facility or facilities by permittee, the permittee shall reimburse the City for its reasonable costs and expenses in connection therewith, including a reasonable Attorney fee. (Ord. C 7312 § 1, 1995: Ord. C 6398 § 1 (part), 1987)

15.44.190 Insurance and indemnity.

At all times, each permittee shall defend, indemnify, and hold harmless the City, its officials, employees and agents from and against all claims, demands, damage, causes of action, proceedings, loss, liability, costs and expenses (including reasonable Attorney fees) of any kind (collectively in this Section, "claim") alleging injury to or death of persons or damage to property and that such injury, death or damage arises from or is attributable to or caused by any of the operations of permittee. Permittee shall notify the City of any claim within ten (10) days.

Permittee shall procure and maintain, at its cost, during the term of the permit and any renewals thereof, insurance as prescribed in regulations issued by the City Manager pursuant to Section 2.84.040. The permit shall be automatically revoked upon failure to maintain the required coverage. (Ord. C 7934 § 20, 2004: Ord. C 7312 § 2, 1995: Ord. C 6451 § 3, 1987: Ord. C 6398 § 1 (part), 1987)

15.44.200 Permanent paving.

A. Should it become necessary or desirable to install permanent paving in any City property in which "facilities" as defined in this Chapter have been installed or are being maintained, the owner thereof, prior to the commencement of the paving, and upon written notice so to do from the Director of Public Works, shall treat or re-treat its subsurface facilities in such manner that the same shall not require major repairs or replacement within a period of one (1) year.

B. The treatment or re-treatment shall be subject to the inspection and approval of the Director of Public Works prior to installation of paving. The treatment or re-treatment shall be commenced within sixty (60) days after service of written notice so to do, as provided in this Chapter, and shall be at the cost and expense of the owner of the facilities involved. If the owner has not commenced the treatment or re-treatment within sixty (60) days after receipt of the written notice so to do, or should the owner thereafter fail to prosecute the work with reasonable diligence, then the Director of Public Works may cause the required work to be done. In that event he shall keep an itemized account of the cost thereof and shall render to the owner a bill for the amount thereof, plus twenty-five percent (25%) for administration and overhead. Acceptance of a permit, or permit supplement issued pursuant to this Chapter, or pursuant to Ordinance C 2843 or C 2998 prior to their repeal, shall constitute a contract by the permittee, the owner of the facilities so installed or maintained, to pay to the City any such amount so incurred within fourteen (14) days after presentation of a bill therefor. If any portion of said bill is not paid within fourteen (14) days after presentation, there shall be on the fifteenth day attached to said unpaid portion of the bill a penalty at the rate of eighteen percent (18%) per annum for each day the payment on the unpaid portion of the bill remains unpaid between the date of presentation and the date of payment. If the payment on the unpaid portion of the bill is not made within sixty (60) days from the date of presentation, there shall, on the sixty-first day, attach in addition to the aforesaid penalty an additional penalty of fifty percent (50%) of the unpaid portion of said bill. Any penalty under one hundred dollars ($100.00) shall be added to the annual pipeline fee payable in the succeeding calendar year. The fact that the facilities have been installed pursuant to other authority shall be no defense to compliance with this Section by the owner of the facilities. (Ord. C 6398 § 1 (part), 1987)

15.44.210 Inventory or description required.

A. All persons owning, using or controlling any "facilities", as defined in this Chapter, installed or maintained beneath the surface of City property shall, within thirty (30) days of written request, submit to the Department of Public Works of the City in the form and manner prescribed by the Director of the Department, a complete inventory of the facilities.

B. If cathodic protection is to be used for "facilities", as defined in this Chapter, which have been or are hereafter installed or maintained beneath the surface of City property, a full description of it shall be furnished to the City which shall show the location and type of anodes, including a full description of methods to be used as a protection against corrosion and electrolytic leakage. (Ord. C 6398 § 1 (part), 1987)

15.44.220 Permit—Transfer.

A. Permittee shall not sell, lease, assign or transfer any of the rights or privileges authorized by any permit or permit supplement issued pursuant to the provisions of this Chapter, or pursuant to Ordinances C 2843 or C 2998 prior to their repeal, or any facilities installed pursuant thereto, unless approved by order of the City. Any purported or attempted sale, lease, assignment or transfer thereof, without the approval, regardless of whether made voluntarily or otherwise, is void and of no effect and transfers none of the rights or privileges authorized by the permit or permit supplement.

B. In the event such a sale, lease assignment or transfer is approved by the City as provided in this Section, then and in that event the permit or

permit supplement shall, upon acceptance thereof by the permittee's successor in interest, be binding upon the successor to the same extent and in like manner as upon permittee. Such acceptance by permittee's successor in interest shall be evidenced by its filing with the Department of Public Works of a faithful performance bond in similar form and amount as required in Section 15.44.230 and an insurance policy in compliance with the provisions of Section 15.44.190. (Ord. C 6398 § 1 (part), 1987)

15.44.230 Bond or other security.

At all times during the term of this permit, permittee shall keep in full force and effect a bond as prescribed in regulations issued by the City Manager pursuant to Section 2.84.040, or a cash deposit, irrevocable letter of credit, or other negotiable securities in an amount equal to the amount required for a bond.

Any bond, cash deposit, irrevocable letter of credit, or other negotiable securities deposited with the City may be used by the City to compensate it for any loss or damage resulting from permittee's failure to perform to the satisfaction of the City Manager any term, covenant and condition of the permit. If any part of the bond, cash deposit, irrevocable letter of credit, or other negotiable security remains unused after the City has been compensated for such loss or damage, the remaining cash or negotiable security shall be returned to permittee and the bond or irrevocable letter of credit shall be released within ten (10) business days. If the City Manager determines that no default has occurred and the City has not been damaged by any of permittee's activities, then the City shall endeavor to return the cash or negotiable security or to release the bond or irrevocable letter of credit within ten (10) business days after such determination by the City Manager and, in any event, no later than sixty (60) days after the expiration of the permit. If the bond, cash, irrevocable letter of credit, or negotiable securities are insufficient to compensate the City for its loss due to permittee's failure to comply with any term, covenant and condition of the permit, permittee shall be liable and pay for any such deficiencies. (Ord. C 7934 § 21, 2004: Ord. C 7868 § 6, 2003: Ord. C 7312 § 3, 1995: Ord. C 6398 § 1 (part), 1987)

15.44.240 Permit—Not to authorize excavations.

No right to use City property shall ever be construed as constituting authority to make any excavations in streets other than in compliance with all applicable ordinances. (Ord. C-6398 § 1 (part), 1987)

15.44.250 Annual certification—Hazardous liquid pipelines.

A. Prior to April 1st of each year every permittee shall certify to the City Manager, the total footage of its hazardous liquid pipelines within the City.

The certification shall include a breakdown of the footage under the control of:

1. United States Department of Transportation;

2. California State Fire Marshal;

3. City of Long Beach.

B. Prior to April 1st of each year each permittee having such hazardous pipelines over which the City has jurisdiction shall file with the Director, Department of Public Works, in a form and manner prescribed by the Director of such Department, a certificate under penalty of perjury that the carrier has complied with all of the requirements of Part 195 (transportation of hazardous liquids by pipeline) of Title 49 of the United States Code of Federal Regulations concerning accident reporting (subpart D), design requirements (subpart C), construction (subpart D), hydrostatic testing (subpart E), operation and maintenance (subpart F), and compliance with all other applicable federal, State and local regulations.

C. Any carrier who fails to file the annual certifications as required section shall be subject to permit revocation pursuant to Section 15.44.180. (Ord. C-6398 § 1 (part), 1987)

CHAPTER 15.48 UNDERGROUND UTILITY DISTRICTS

15.48.010 Definitions.

Whenever in this Chapter the words or phrases defined in this Section are used, they shall have the respective meanings assigned to them in the following definitions:

"Commission" means the Public Utilities Commission of the State.

"Facility changes" means improvements constructed or installed on private property necessary to receive service from the underground facilities of the utility including, but not limited to, meter panel conversions.

"Person" means and includes individuals, firms, corporations, partnerships, and their agents and employees.

"Poles, overhead wires and associated overhead structures" means poles, towers, supports, wires, conductors, guys, stubs, platforms, crossarms, braces, transformers, insulators, cutouts, switches, communication circuits, appliances, attachments and appurtenances located above ground within a district and used or useful in distributing or supplying electric, communication or similar or associated services.

"Underground utility district" or *"district"* means that area in the City within which poles, overhead wires, and associated overhead structures are prohibited, as such area is described in a resolution adopted pursuant to the provisions of Section 15.48.030.

"Utility" means and includes all persons or entities supplying electric, communication or similar associated service by means of electrical materials or devices. (ORD-06-0029 § 1, 2006; Ord. C-7477 § 1, 1997; prior code § 7610)

15.48.020 Hearing.

A. The Council may from time to time call public hearings to ascertain whether it is in the general public interest to replace utility poles, overhead wires and associated overhead structures within designated areas of the City with the underground installation of wires and facilities for distributing or supplying electric, communication, or similar or associated service. The criteria for making the determination shall be one (1) or more of the following:

1. Such undergrounding will avoid or eliminate an unusually heavy concentration of overhead electric facilities; or

2. The street or road or right-of-way is extensively used by the general public and carries a heavy volume of pedestrian or vehicular traffic; or

3. The street or road or right-of-way adjoins or passes through a civic area or public recreation area or an area of unusual scenic interest to the general public; or

4. The City has received a request for the undergrounding of utilities from property owners, such request conforms to PUC requirements for Rule 20B projects, and the City Council has established a utility district to provide funding for the undergrounding.

B. The City Clerk shall notify by mail all affected property owners as shown on the last equalized assessment roll and utilities concerned of the time and place of the hearings, at least ten (10) days prior to the date thereof. Each such hearing shall be open to the public and may be continued from time to time. At each such hearing all persons interested shall be given an opportunity to be heard. The decision of the Council shall be final and conclusive.

C. Prior to holding the public hearing, the City Engineer or his or her designee shall prepare a report for submission at the hearing. The report shall contain, among other information, a description of the project, a date by which property owners must complete all electric facility changes on the premises necessary to receive service from the underground facilities of the utility, and an estimate of the time required to complete the underground installation and removal of poles, overhead wires, and associated overhead structures. (ORD-10-0023, § 1, 2010; Ord. C-7477 § 2, 1997: prior code § 7620)

15.48.030 Establishment.

If, after such public hearing, the Council finds that it is in the general public interest to replace

utility poles, overhead wires and associated overhead structures within the designated area, the Council shall adopt an ordinance creating an underground district requiring that all existing poles, overhead wires and associated overhead structures in such district shall be removed, that each property served from such poles, wires and associated overhead structures shall have installed, in accordance with the utility's rules for underground service as approved by the Public Utilities Commission, all facility changes on the premises necessary to receive service from the underground facilities of the utility as soon as it is available, and authorizing the utility to discontinue overhead service. (Ord. C-7477 § 3, 1997: prior code § 7621)

15.48.040 Construction or maintenance of overhead facilities prohibited.

Whenever the Council creates an underground utility district and orders the removal of poles, overhead wires and associated overhead structures therein as provided in Section 15.48.030, it is unlawful for any person or utility to erect, construct, place, keep, maintain, continue, employ or operate poles, overhead wires and associated overhead structures in the district after the date when the overhead facilities are required to be removed by the resolution, except as the overhead facilities may be required to furnish service to an owner or occupant of property prior to the performance by the owner or occupant of the underground work necessary for the owner or occupant to continue to receive utility service as provided in Section 15.48.090, and for such reasonable time required to remove the facilities after the work has been performed, and except as otherwise provided in this Chapter. (Prior code § 7622)

15.48.050 Emergency exception.

Notwithstanding the provisions of this Chapter, overhead facilities may be installed and maintained for a period, not to exceed thirty (30) days, without authorization in order to provide emergency service. The City Council may grant special permission, on such terms as the City Council may deem appropriate, in cases of unusual circumstances without discrimination as to any person or utility to erect, construct, install, maintain, use or operate poles, overhead wires and associated overhead structures. (Ord. C-5691 § 2 (part), 1981; prior code § 7623)

15.48.060 Exempt facilities.

This Chapter and any resolutions adopted pursuant to Section 15.48.030 shall, unless otherwise provided in the resolution, not apply to the following type of facilities:

A. Any municipal facilities or equipment installed under the supervision and to the satisfaction of the City Engineer;

B. Poles, or electroliers used exclusively for street lighting;

C. Poles, overhead wires and associated overhead structures used for the transmission of electric energy at nominal voltages in excess of thirty-four thousand five hundred (34,500) volts;

D. Overhead wires attached to the exterior surface of a building by means of a bracket or other fixture and extending from one location on the building to another location on the same building or to an adjacent building without crossing any public street;

E. Antennae, associated equipment and supporting structures used by a utility for furnishing communication services;

F. Equipment appurtenant to underground facilities such as surface-mounted transformers, pedestal-mounted terminal boxes and meter cabinets, and concealed ducts;

G. Temporary poles, overhead wires and associated overhead structures used or to be used in conjunction with construction projects. (Prior code § 7624)

15.48.070 Notice to property owners and utilities.

A. Within ten (10) days after the effective date of a resolution adopted pursuant to Section 15.48.030, the City Clerk shall notify all affected utilities and all persons owning real property within the district created by the resolution of the adoption thereof. The City Clerk shall further notify

the affected property owners of the necessity that, if they or any person occupying the property desire to continue to receive electric, communication, or similar or associated service, they or the occupant shall provide all necessary facility changes on their premises so as to receive the service from the lines of the supplying utility or utilities at a new location, subject to the applicable rules, regulations and tariffs on the respective utility or utilities on file with the Commission.

B. Notification by the City Clerk shall be made by mailing a copy of the resolution adopted pursuant to Section 15.48.030, together with a copy of this Chapter, to affected property owners as such are shown on the last equalized assessment roll and to the affected utilities. (Prior code § 7625)

15.48.080 Utility company responsibility.

If underground construction is necessary to provide utility service within a district created by any resolution adopted pursuant to Section 15.48.030, the supplying utility shall furnish that portion of the conduits, conductors and associated equipment required to be furnished by it under its applicable rules, regulations and tariffs on file with the Commission. (Prior code § 7626)

15.48.090 Persons responsible.

A. Every person owning, operating, leasing, occupying or renting a building or structure within a district, and every person owning, leasing or renting property within a district who receives electrical service to that property in any manner, shall construct and provide on his or her property all facility changes on the premises necessary to receive service from the underground facilities of the utility within ninety (90) days following the mailing to the property address of notice that underground service is available for connection.

B. Notwithstanding requirements of the foregoing Subsection A of this Section, and in accordance with the utility's rules for underground service as approved by the Public Utilities Commission, financial assistance may be provided to a person described in Subsection A of this Section for facility changes if:

1. The City Engineer determines that the completion of the work within a district would be facilitated by providing such assistance; and

2. Funds are available for such assistance; and

3. The plans, specifications and cost estimates for the replacement of the facility changes have received the prior approval of the City Engineer; and

4. The district is numbered thirty-nine (39) or greater, or was formed on or after September 1, 2006.

Facility changes eligible for financial assistance are limited to the replacement of a meter panel with equipment which is compatible with the new underground service and which is similar in size and function to the existing equipment. Facility changes which the City Engineer determines constitute upgrades or improvements are not eligible for financial assistance. (ORD-06-0029 § 2, 2006: Ord. C-7477 § 4, 1997: prior code § 7627)

15.48.095 Notification and disconnection.

A. If the facility changes necessary to receive services from the underground facilities of the utility are not accomplished for any premises within the district within the time provided for in the resolution enacted pursuant to Section 15.48.030, the City Engineer shall deliver or mail by certified mail, return receipt requested, notice in writing to the person in possession of the premises, and a notice in writing to the owner thereof as shown on the last equalized assessment roll. The notice shall: (1) particularly specify what work is required to be done by the property to comply with this Chapter; (2) contain a date at least thirty (30) days following the date of the notice, by which date the required work must be completed; and (3) state that if the work is not done on or before that date, the City Engineer will notify the utility to discontinue service to the property through overhead poles, overhead wires, and related structures, in accordance with the applicable rules, regulations and tariffs of the respective utility or utilities on file with the Commission. The City Engineer shall, within forty-eight (48) hours of delivery or mailing, cause a copy of the notice to be posted in a conspicuous place on the premises.

B. The City Engineer is authorized to instruct the utility to discontinue service to the prop-

erty through overhead poles, overhead wires, and related structures on the first business day following the compliance date provided in the notice described in Subsection A of this Section, or earlier if he or she determines that the required work has been completed. (Ord. C-7477 § 5, 1997)

15.48.100 City responsibility.

The City shall remove at its own expense all City-owned equipment from all poles required to be removed under this Chapter in ample time to enable the owner or user of the poles to remove the same within the time specified in the resolution enacted pursuant to Section 15.48.030. (Prior code § 7628)

15.48.110 Time extension.

In the event that any act required in this Chapter or by a resolution adopted pursuant to Section 15.48.030 cannot be performed within the time provided on account of shortage of materials, war, restraint by public authorities, strikes, labor disturbances, civil disobedience, or any other circumstances beyond the control of the actor, then the time within which the act will be accomplished shall be extended for a period equivalent to the time of the limitation upon authorization by the City Council. (Ord. C 5691 § 2 (part), 1981; prior code § 7629)

15.48.120 Penalty for violation.

It is unlawful for any person to violate any provision or to fail to comply with any of the requirements of this Chapter. Any person violating any provision of this Chapter or failing to comply with any of its requirements shall be deemed guilty of a misdemeanor and upon conviction thereof shall be punished by a fine not exceeding five hundred dollars ($500.00) or by imprisonment not exceeding six (6) months, or by both such fine and imprisonment. Each such person shall be deemed guilty of a separate offense for each day during any portion of which any violation of any of the provisions of this Chapter is committed, continued or permitted by such person, and shall be punishable therefor as provided for in this Chapter. (Prior code § 7630)

CHAPTER 15.74 CABLE SYSTEM REGULATORY ORDINANCE OF THE CITY OF LONG BEACH*

15.74.005 Authority and findings.

A. Authority. The City of Long Beach ("City"), pursuant to applicable federal and State law, is authorized to grant one (1) or more nonexclusive franchises to own, construct, operate, maintain and reconstruct cable systems within the City limits.

B. Findings. The City Council of the City of Long Beach ("City Council") finds that the development of cable television and telecommunications systems has the potential of having great benefit and impact upon the residents of the City. Because of the complex and rapidly changing technology associated with cable systems, the City Council further finds that the public convenience, safety and general welfare can best be served by establishing regulatory powers which should be vested in the City or such persons as the City may designate. It is the intent of this Chapter to provide for and specify the means to attain the best possible cable and telecommunications service to the public and any franchises issued pursuant to this Chapter shall be deemed to include this as an integral finding thereof. It is the further intent of this Chapter to establish regulatory provisions that permit the City to regulate cable system franchises to the extent permitted by federal and State law, including, but not limited to, the Cable Communications Policy Act of 1984, the Cable Television Consumer Protection and Competition Act of 1992, the Telecommunications Act of 1996, applicable Federal Communications Commission regulations and applicable California law. (Ord. C 7471 § 1, 1997)

15.74.010 Title.

The title of the ordinance codified in this Chapter shall be the Cable System Regulatory Ordi-

*__Note__—Prior ordinance history: Ords. C-6175, C-6202, C-6539 and C-7021.

nance of the City of Long Beach, and it may be so cited. (Ord. C 7471 § 1, 1997)

15.74.015 Definitions.

As used in this Chapter, the following terms, phrases, words and their derivations shall have the meanings given herein. When not inconsistent with the context, words used in the present tense include the future, words in the plural number include the singular number, and words in the singular number include the plural number. Words not defined shall be given their common and ordinary meaning consistent with the context in which such words are used and the purposes of this Chapter.

A. "Basic cable service" means any service tier which includes the retransmission of local television broadcast signals.

B. "Cable service" means:

1. The one-way transmission to subscribers of: (a) video programming; or (b) other programming service; and

2. Subscriber interaction, if any, which is required for the selection or use of such video programming or other programming service.

C. "Cable system", or "system", means a facility consisting of a set of closed transmission paths and associated signal generation, reception, and control equipment, that is designed to provide cable service which includes video programming and any other lawful telecommunications services and which is provided to multiple subscribers within a community, but such term does not include:

1. A facility that serves only to transmit television signals of one (1) or more television broad cast stations;

2. A facility that serves subscribers without using any public right-of-way;

3. A facility of a common carrier, which is subject in whole or in part to the provisions of Title II of the Federal Telecommunications Act of 1996, except that such facility shall be considered a cable system to the extent such facility is used in the transmission of video programming directly to subscribers unless the extent of such use is solely to provide interactive on demand services; or

4. An open video system that complies with Section 653 of the Federal Telecommunications Act of 1996; or

5. Any facilities of any electric utility used solely for operating its electric utility system.

D. "Channel" or "cable channel" means a portion of the electromagnetic frequency spectrum which is used in a cable system which is capable of delivering a television channel as defined by the Federal Communications Commission.

E. "City" means the City of Long Beach as represented by the City Council or any delegate, acting within the scope of its jurisdiction.

F. "City Council" means the City Council of the City of Long Beach.

G. "Franchise" means an initial authorization, or renewal or extension thereof, issued by the City Council, whether such authorization is designated as a franchise, permit, license, resolution, contract, certificate, agreement, or otherwise, which authorizes the construction or operation of a cable system. Any such authorization, in whatever form granted, shall not supersede the requirement to obtain any other license or permit required for the privilege of transacting business within the City as required by the other ordinances and laws of the City.

H. "Franchise agreement" means a franchise grant ordinance or a contractual agreement, containing the specific provisions of the franchise granted, including references, specific provisions of the franchise granted, including references, specifications, requirements and other related matters.

I. "Franchise fee" means any fee or assessment of any kind imposed by the City on a grantee as compensation for grantee's use of the public rights-of-way. The term "franchise fee" does not include:

1. Any tax, fee or assessment of general applicability (including any such tax, fee, or assessment imposed on both utilities and cable operators or their services, but not including a tax, fee or assessment which is unduly discriminatory against cable operators or cable subscribers);

2. Capital costs which are required by the franchise to be incurred by grantee for public, educational, or governmental access facilities;

3. Requirements or charges incidental to the awarding or enforcing of the franchise, including payments for bonds, security funds, letters of credit, insurance, indemnification, penalties, or liquidated damages; or

4. Any fee imposed under Title 17, United States Code.

J. "Grantee" means any "person" receiving a franchise or renewal pursuant to this Chapter and under the granting franchise ordinance or agreement, and its lawful successor, transferee or assignee.

K. "Gross annual cable service revenues" means the annual gross revenues received by a grantee from the provision of cable service within the City. Ancillary revenues from the provision of cable service, including, but not necessarily limited to, local advertising, home shopping channel commissions and leased access revenues shall be included in gross annual cable service revenues, but refundable deposits, rebates or credits, and any sales, excise or other taxes or charges collected for direct pass-through to local, State or federal government shall not be included in gross annual cable service revenues. Revenues collected as franchise fees from subscribers shall not be included in gross annual cable service revenues pending the outcome of litigation of the FCC's decision with respect to the franchise fee issue in United Artists Cable of Baltimore, 77 RR 2d 1306 (released April 6, 1995) If the final decision (following all judicial appeals) in this case results in a determination that franchise fees should be included in gross annual cable service revenues, then grantee shall pay any underpayment of franchise fees owed to City, based on such determination, including interest from the date originally due, within ninety (90) days of the final decision.

L. "Gross annual telecommunications service revenues" means the annual revenues received by a grantee from the operation of a cable system to provide telecommunications services other than cable service.

M. "Installation" means the connection of the cable system to subscribers' terminals, and the provision of service.

N. "Person" means an individual, partnership, association, joint stock company, trust, corporation or governmental entity.

O. "Public, educational or governmental access facilities" or "PEG access facilities" means the total of the following:

1. Channel capacity designated for noncommercial public, educational, or governmental use; and

2. Facilities and equipment for the use of such channel capacity.

P. "Public rights-of-way" or "rights-of-way" or "public way" means each of the following which have been dedicated to the public or are hereafter dedicated to the public and maintained under public authority or by others and located within the City limits: streets, roadways, highways, avenues, lanes, alleys, sidewalks, easements, rights-of-way and similar public property and areas that City shall permit to be included within the definition of "public rights-of-way" from time to time.

Q. "Section" means any Section, Subsection or provision of this Chapter.

R. "Service area" or "franchise area" means the entire geographic area within the City as it is now constituted or may in the future be constituted, unless otherwise specified in the franchise granting ordinance or franchise agreement.

S. "Service tier" means a category of cable service or other services provided by a grantee and for which a separate rate is charged by a grantee.

T. "State" means the State of California.

U. "Subscriber" or "customer" or "consumer" means any person who or which elects to subscribe to, for any purpose, a service provided by a grantee by means of or in connection with a cable system, and who pays the charges therefor.

V. "Telecommunications service" means any service, other than cable service, delivered over the facilities of the cable system.

W. "Video programming" means programming generally considered comparable to programming provided by a television broadcast station. (Ord. C-7471 § 1, 1997)

15.74.020 Franchise terms and conditions.

A. Franchise purposes. A franchise shall encompass the following purposes:

1. To engage in the business of providing cable service, and such other telecommunications service as may be permitted by law, which a grantee chooses to provide to subscribers within the designated service area.

2. To own, erect, install, construct, repair, rebuild, reconstruct, replace, maintain, locate, relocate and retain, cable lines, related electronic equipment, supporting structures, appurtenances, and other property in connection with the operation of the cable system in, on, over, under, upon, along and across the public rights-of-way within the designated service area.

3. To maintain and operate said franchise properties for the origination, reception, transmission, amplification, and distribution of television and radio signals and for the delivery of cable service, and such other services as may be permitted by law.

4. To set forth the obligations of a grantee under the franchise.

B. Franchise required. It shall be unlawful for any person to construct, install or operate a cable system in the City without a properly granted franchise awarded pursuant to the provisions of this Chapter.

C. Term of the franchise.

1. A franchise granted hereunder shall be for a term established in the franchise agreement, commencing on City's adoption of an ordinance or resolution authorizing the franchise.

2. A franchise granted hereunder shall be renewed upon application by grantee pursuant to the provisions of applicable State and federal law and of this Chapter.

D. Franchise territory. Any franchise shall be valid within all the territorial limits of the City, and within any area added to the City during the term of the franchise, unless otherwise specified in the franchise granting ordinance or franchise agreement.

E. Federal or State jurisdiction. This Chapter shall be construed in a manner consistent with all applicable federal and State laws, and shall apply to all franchises granted or renewed after the effective date of this Chapter to the extent permitted by applicable law.

F. Franchise nontransferable.

1. Grantee shall not sell, transfer, lease, assign, sublet or dispose of, in whole or in part, either by forced or involuntary sale, or by ordinary sale, contract, consolidation or otherwise, the franchise or any of the rights or privileges therein granted, without the prior consent of City Council and then only upon such terms and conditions as may be prescribed by City Council, which consent shall not be unreasonably denied or delayed. Any attempt to sell, transfer, lease, assign or otherwise dispose of the franchise without the consent of City Council shall be null and void. No consent shall be required for a transfer in trust, mortgage or other hypothecation, in whole or part, to secure an indebtedness, except that when such hypothecation shall exceed twenty-five percent (25%) of the market value of the property used by a grantee in the conduct of the cable system, prior consent of City Council shall be required. For the purpose of considering applications for consent for hypothecation, any ratio of the amount of secured indebtedness to the market value of the property used by a grantee in the conduct of the cable system which does not exceed 0.775:1 will be deemed reasonable.

2. In the event that grantee shall assign, convey, sell or otherwise dispose of the system, whether voluntarily or involuntarily, the increase in rates, if any, shall be governed by applicable law.

3. The requirements of Subsection 15.74.020.F.1 shall apply to any change in control of grantee. The word "control" as used herein is not limited to major stockholders or partnership interests, but includes actual working control in whatever manner exercised. In the event that grantee is a corporation, prior authorization of City Council shall be required where ownership or control of more than ten percent (10%) of the voting stock of grantee is acquired by a person or group of persons acting in concert, none of whom, singularly or collectively, own or control fifty per-

cent (50%) or more of the voting stock of grantee as of the effective date of the franchise, or the date of the last consent, if any, by City to any transfer of control.

4. For the purpose of determining whether it shall consent to such change, transfer, or acquisition of control, City may inquire into the qualifications of the prospective transferee or controlling party, and grantee shall assist City in such inquiry. In seeking City's consent to any change of ownership or control, grantee shall have the responsibility of ensuring that grantee and/or the proposed transferee complete an application in accordance with Federal Communications Commission Form 394 ("Form 394") or equivalent, or any successor form. An application shall be submitted to City not less than one hundred twenty (120) days prior to the proposed date of transfer. In addition to the information required by Form 394, grantee and/or the prospective transferee shall provide City with such other information as reasonably requested by City relating to the legal, technical, financial qualifications of the proposed transferee.

5. Consistent with applicable law, the proposed transferee shall be required to establish that it possesses the legal, technical and financial qualifications to operate and maintain the system and comply with all franchise requirements for the remainder of the term of the franchise. If the legal, technical and financial qualifications of the proposed transferee are satisfactory to City, City shall consent to the transfer of the franchise. The consent of City to such transfer shall not be unreasonably denied or delayed.

6. Any financial institution having a pledge of grantee or its assets for the advancement of money for the construction and/or operation of the franchise shall have the right to notify City that it or its designee satisfactory to City shall take control of and operate the cable system, in the event grantee defaults of its financial obligations. Said financial institution shall also submit a plan for such operation within ninety (90) days of assuming such control that will ensure continued service and compliance with all franchise requirements during the term the financial institution exercises control over the system. The financial institution shall not exercise control over the system for a period exceeding one (1) year, unless extended by City in its discretion, and during said period of time it shall have the right to petition City to transfer the franchise to another grantee.

7. Grantee shall notify City in writing of any foreclosure or any other judicial sale of all or a substantial part of the franchise property of grantee or upon the termination of any lease or interest covering all or a substantial part of said franchise property. Such notification shall be considered by City as notice that a change in control of ownership of the franchise has taken place and the provisions under this Section governing the consent of City to such change in control of ownership shall apply.

8. Upon transfer, grantee shall reimburse City for City's reasonable out-of-pocket processing and review expenses in connection with the transfer of the franchise or of control of the franchise. Any such reimbursement shall not be charged against any franchise fee due to City during the term of the franchise.

G. Geographical coverage.

1. Grantee shall design, construct and maintain the cable system to have the capability to pass every dwelling unit in the City, subject to any service area line extension requirements of the franchise agreement.

2. A grantee shall only be excused from providing cable service to those buildings, streets, areas or locations specifically designated in its proposal as being technically impossible to service, it being the City's intention that cable service shall be provided to all persons in the City unless it is technically impossible to do so. Commercial impracticability, expense or other economic reasons shall not excuse or justify a grantee's failure to provide cable service to any location in the City that is not specifically listed in a grantee's proposal as being technically impossible to serve. Litigation instituted by a third party shall not suspend a grantee's obligation to construct and install the cable system in accordance with a time schedule contained in a franchise agreement.

3. After service has been established by activating trunk and/or distribution cables for any service area, grantee shall provide service to any requesting subscriber within that service area within thirty (30) days from the date of request, provided that grantee is able to secure all rights-of-way necessary to extend service to such subscriber within such thirty (30) day period on reasonable terms and conditions.

H. Nonexclusive franchise. Any franchise shall be nonexclusive. City specifically reserves the right to grant, at any time, such additional franchises as it deems appropriate, subject to applicable State and federal law, provided that if City grants an additional franchise on terms more favorable to another grantee (whether by the grant of greater benefits or the imposition of lesser obligations), or if another entity utilizing the public rights-of-way pursuant to a franchise offers cable service competitive with grantee, then the initial grantee shall have the right to renegotiate its franchise to achieve competitively neutral and nondiscriminatory treatment.

I. Multiple franchises.

1. City may grant franchise to any person at any time and in any area of the City or for the entire City, if City determines, in its sole discretion, that the granting of more than one (1) franchise is in the public interest. City may limit the number of franchises granted, based upon, but not necessarily limited to, the requirements of applicable law and specific local considerations, such as:

a. The capacity of the public rights-of-way to accommodate multiple cables in addition to the cables, conduits and pipes of the utility systems, such as electrical power, telephone, gas and sewerage.

b. The benefits that may accrue to Subscribers as a result of cable system competition, such as lower rates and improved service.

c. The disadvantages that may result from cable system competition, such as the requirement for multiple pedestals on residents' property, and the disruption arising from numerous excavations of the rights-of-way.

2. Developers of new residential housing with underground utilities shall provide conduit to accommodate cables for at least two (2) cable systems and dedicate the use of such conduit to the City.

3. City may require that any new grantee be responsible for its own underground trenching and the costs associated therewith, if, in City's opinion, the rights-of-way in any particular area cannot feasibly and reasonably accommodate additional cables. (Ord. C-7471 § 1, 1997)

15.74.025 Franchise applications and renewal.

A. Filing of Applications. Any Person desiring Franchise shall file an application with the City. A reasonable application fee established by the City shall accompany the application to cover all costs associated with processing and reviewing the application, including without limitation costs of administrative review, financial, legal and technical evaluation of the applicant, consultants (including technical and legal experts and all costs incurred by such experts), notice and publication requirements with respect to the consideration of the application and document preparation expenses. The application fee shall be nonrefundable, regardless of the nature or outcome of any specific matter under consideration by City. In the event such costs exceed the application fee, the selected applicant(s) shall pay the difference to the City within thirty (30) days following receipt of an itemized statement of such costs.

B. Applications—Contents. An application for Franchise shall contain, where applicable:

1. A statement as to the proposed Franchise and Service Areas;

2. A resume of the prior relevant history of the applicant, including the expertise of the applicant in operating a Cable System;

3. A list of the partners, general and limited, of the applicant, if a partnership, or the percentage of stock owned or controlled by each stockholder, if a corporation;

4. A list of officers, directors and managing employees of applicant, together with a description of the background of each such Person;

5. The names and addresses of any parent or subsidiary of applicant or any other business entity owning or controlling applicant in whole or in part, or owned or controlled in whole or in part by applicant;

6. A current financial statement of applicant verified by a Certified Public Accountant audit or otherwise certified to be true, complete and correct to the reasonable satisfaction of the City;

7. A proposed construction and service schedule;

8. Any reasonable additional information that the City deems applicable, consistent with law.

C. Consideration of Initial Applications.

1. Upon receipt of any application for a Franchise, the City Manager or a delegate shall prepare and deliver a report covering such application to the City Council.

2. A public hearing shall be set prior to any initial Franchise grant, at a time and date approved by City Council. Within thirty (30) days after the close of the hearing, City Council shall make a decision based upon the evidence received at the hearing as to whether or not the Franchise(s) should be granted, and, if granted, subject to what conditions. City Council may grant one or more Franchises, or may decline to grant any Franchise.

D. Franchise Renewal. Franchise renewals shall be reviewed and considered in accordance with applicable law. City and Grantee, by mutual consent, may enter into renewal negotiations at any time during the term of a Franchise. (Ord. C-7471 § 1, 1997)

15.74.030 Minimum consumer protection and service standards.

A. Operational Standards. Except as otherwise provided in the Franchise Agreement, Grantee shall maintain the necessary facilities, equipment and personnel to comply with the following consumer protection and service standards under normal conditions of operation:

1. Sufficient toll-free telephone line capacity during normal business hours to assure that telephone calls shall be answered before the fourth ring; telephone answer time by a customer service representative, including wait time, shall not exceed thirty (30) seconds; and callers needing to be transferred shall not be required to wait more than thirty (30) seconds before being connected to a service representative during normal business hours. Under normal operating conditions, a caller shall receive a busy signal less than three percent (3%) of the time.

2. Emergency toll-free telephone line capacity on a twenty-four (24) hour basis, including weekends and holidays. After normal business hours, the telephone calls may be answered by a service or an automated response system, including an answering machine. Calls received after normal business hours must be responded to by a trained company representative on the next business day.

3. A conveniently located business and service and/or payment office within the City, open during normal business hours at least eight (8) hours daily, and at least four (4) hours weekly on evenings or weekends, and adequately staffed to accept Subscriber payments and respond to service requests and complaints.

4. An emergency system maintenance and repair staff, capable of responding to and repairing major Cable System malfunction on a twenty-four (24) hour per day basis.

5. An installation staff, capable of installing service to any residential Subscriber requiring a standard installation within seven (7) days after receipt of a request. "Standard installations" shall be those that are located up to one hundred twenty-five feet (125') from the existing distribution System, unless otherwise defined in any Franchise Agreement.

6. Grantee shall schedule, within a specified four (4) hour time period during normal business hours, all appointments with Subscribers for installation of service, service calls and other activities at the Subscriber location. Grantee may schedule installation and service calls outside of normal business hours for the express convenience of the customer. Grantee shall not cancel an appointment with a customer after the close of business

on the business day prior to the scheduled appointment. If a representative of Grantee is running late for an appointment with a Customer and will not be able to keep the appointment as scheduled, the Customer shall be contacted and the appointment rescheduled, as necessary, at a time which is convenient for the Customer.

7. The standards of Subsections 15.74.030.A.1 through 15.74.030.A.6 above shall be met not less than ninety percent (90%) of the time, measured on a quarterly basis.

B. Service Standards.

1. Grantee shall render efficient service, make repairs promptly, and interrupt service only for good cause and for the shortest time possible. Scheduled interruptions, insofar as possible, shall be preceded by notice and shall occur during a period of minimum use of the Cable System, preferably between midnight and six a.m.

2. Grantee shall maintain a repair force of technicians normally capable of responding to Subscriber requests for service within the following time frames:

a. For a System outage: Within two hours, including weekends, of receiving Subscriber calls or requests for service which by number identify a System outage of sound or picture of one or more channels, affecting at least ten percent (10%) of the Subscribers of the System.

b. For an isolated outage: Within twenty-four (24) hours, including weekends, of receiving requests for service identifying an isolated outage of sound or picture for one (1) or more channels that affects three (3) or more Subscribers. On weekends, an outage affecting fewer than three (3) Subscribers shall result in a service call no later than the following Monday morning.

c. For inferior signal quality: Within forty-eight (48) hours, excluding Sundays and holidays, of receiving a request for service identifying a problem concerning picture or sound quality.

3. Grantee shall be deemed to have responded to a request for service under the provisions of this Section when a technician arrives at the service location and begins work on the problem. In the case of a Subscriber not being home when the technician arrives, the technician shall leave written notification of arrival.

4. Grantee shall not charge for the repair or replacement of defective or malfunctioning equipment provided by Grantee to Subscribers, unless the defect was caused by the Subscriber.

5. Unless excused, Grantee shall determine the nature of the problem within forty-eight (48) hours of beginning work and resolve all Cable System related problems within five (5) business days unless technically infeasible.

C. Billing and Information Standards.

1. Subscriber bills shall be clear, concise and understandable. Bills shall be fully itemized, with itemizations including, but not limited to, basic and premium service charges and equipment charges. Bills shall also clearly delineate all activity during the billing period, including optional charges, rebates and credits.

2. In case of a billing dispute, a Grantee shall respond to a written complaint from a Subscriber within thirty (30) days.

3. Except for acts of God, and except in circumstances where prior approval has been obtained from the City, in the event that service to any Subscriber or user is interrupted, and the interruption is under the control of Grantee, a Grantee shall, upon request, rebate a percentage of the monthly fee to affected Subscribers or users as follows:

a. Twenty-four (24) consecutive hours: five percent (5%) rebate of the monthly fee;

b. Twenty-four (24) to forty-eight (48) consecutive hours: fifteen percent (15%) rebate of the monthly fee;

c. Forty-eight (48) to seventy-two (72) consecutive hours: twenty-five percent (25%) rebate of the monthly fee;

d. Greater than seventy-two (72) consecutive hours: fifty percent (50%) rebate of the monthly fee.

For Subscribers terminating service, refunds shall be issued promptly, but no later than thirty (30) days after the return of any Grantee-supplied equipment.

4. Grantee shall provide written information on each of the following areas at the time of the installation of service, at least annually to all Subscribers, and at any time upon reasonable request:

a. Products and services offered; and

b. Prices and options for programming services and conditions of subscription to programming and other services; and

c. Installation and service maintenance policies; and

d. Instructions on how to use the Cable Service; and

e. Channel positions of programming carried on the System; and

f. Billing and complaint procedures, including the address and telephone number of City office designated for dealing with cable-related issues.

5. Subscribers shall be notified of any changes in rates, programming services or channel positions as soon as possible through announcements on the Cable System and in writing. Subject to applicable law, notice must be given to Subscribers a minimum of thirty (30) days in advance of such changes if the change is within the control of Grantee. In addition, Grantee shall notify Subscribers thirty (30) days in advance of any significant changes in the information required in Subsection 15.74.030.C.4.d above.

D. Verification of Compliance with Standards.

1. Upon five (5) days' notice, Grantee shall establish its compliance with any or all of the standards required above. Grantee shall provide sufficient documentation to permit City to verify the compliance.

2. A repeated and verifiable pattern of noncompliance with the consumer protection standards of Subsections 15.74.030.B.1 through 15.74.030.B.5 above, after Grantee's receipt of due notice and an opportunity to cure, may be deemed a material breach of the Franchise Agreement.

E. Subscriber Complaints and Disputes.

1. Grantee shall establish written procedures for receiving, acting upon and resolving Subscriber complaints without intervention by City. The written procedures shall prescribe the manner in which a Subscriber may submit a complaint either orally or in writing specifying the Subscriber's grounds for dissatisfaction. Grantee shall file a copy of these procedures with City. Said procedures shall include a requirement that Grantee respond to any written complaint from a Subscriber within thirty (30) days of receipt.

2. City shall have the right to review Grantee's response to Subscriber complaints in order to determine Grantee's compliance with the Franchise requirements, subject to the Subscriber's right to privacy.

3. It shall be the right of all Subscribers to continue receiving Cable Service insofar as their financial and other obligations to Grantee are honored. In the event that a Grantee elects to rebuild, modify, or sell the System, or City gives notice of intent to terminate or not to renew the Franchise, Grantee shall act so as to ensure that all Subscribers receive service so long as the Franchise remains in force.

4. In the event of a change of control of Grantee, or in the event a new operator acquires the System, the original Grantee shall cooperate with City, new Grantee or operator in maintaining continuity of Cable Service to all Subscribers.

F. Other Requirements.

1. In the event a Grantee fails to operate the System for seven (7) consecutive days without prior approval or subsequent excuse of City, City may, at its sole option, operate the System or designate an operator until such time as Grantee restores service under conditions acceptable to City or a permanent operator is selected. If City should fulfill this obligation for Grantee, then during such period as City fulfills such obligation, City shall be entitled to collect all revenues from the System, and Grantee shall indemnify City against any damages City may suffer as a result of such failure.

2. In the carrying out of the construction, maintenance and operation of the cable television system, a Grantee shall not discriminate against any employee or applicant for employment because of race, color, religion, national origin, sex, sexual orientation, age, disability or handicap, disabled or Vietnam era veteran status.

3. A Grantee shall take affirmative action to ensure that applicants are employed, and that employees are treated during employment, without regard to their race, color, religion, national origin, sex, sexual orientation, age, disability or handicap, disabled or Vietnam era veteran status. Such action shall include, but not be limited to, the following: employment, upgrading, demotion or transfer, recruitment or recruitment advertising, layoff or termination, rates of pay or other forms of compensation, and selection of training, including apprenticeship.

4. A Grantee shall post in conspicuous places, available to employees and applicants for employment, notices setting forth the provisions of this nondiscrimination clause.

5. A Grantee shall, in all solicitations or advertisements for employees placed by or on behalf of Grantee, state that all qualified applicants shall receive consideration for employment without regard to race, creed, color, sex, age or national origin.

6. A Grantee shall incorporate the foregoing requirements in all of its contracts for work relative to construction, maintenance and operation of cable television system, other than contracts for standard commercial supplies or raw materials, and shall require all of its contractors for such work to incorporate such requirements in all subcontracts for such work.

7. In the event that any provision of this Section 15.74.030 is found to be inconsistent with provisions of Section 634 of the United States Cable Communications Act of 1984, the provisions of Section 634 shall control.

8. All officers, agents or employees of a Grantee or its contractors or subcontractors who, in the normal course of work come into contact with members of the public or who require entry onto Subscribers' premises shall carry a photo-identification card in a form approved by City. Grantee shall account for all identification cards at all times. Every vehicle of a Grantee and its major subcontractors shall be clearly identified as belonging to Grantee or subcontractor, as the case may be.

9. Additional service standards and standards governing consumer protection and response by Grantee to Subscriber complaints not otherwise provided for in this Chapter may be established in the Franchise Agreement or by separate ordinance, and a Grantee shall comply with such standards in the operations of the Cable System. A verified and continuing pattern of noncompliance may be deemed a material breach of the Franchise, provided that a Grantee shall receive due process, including written notification and an opportunity to cure, prior to any sanction being imposed. (Ord.C-7471 § 1, 1997)

15.74.035 Franchise fee and financial requirements.

A. Franchise Fee. Following the issuance and acceptance of the Franchise, Grantee shall pay to City a Franchise Fee on Gross Annual Cable Service Revenues in the amount and at the times set forth in the Franchise Agreement. For Telecommunications Service revenues, a Grantee shall pay an in-lieu-of-franchise-fee payment in the maximum amount permitted by applicable law.

1. City, on an annual basis, shall be furnished a statement within one hundred twenty (120) days of the close of the calendar year, either audited and certified by an independent Certified Public Accountant or certified by an officer of Grantee, reflecting the total amounts of gross revenues and all payments, deductions and computations for the period covered by the payment. Upon thirty (30) days prior written notice, City shall have the right to conduct an independent audit of Grantee's records, in accordance with generally accepted accounting procedures, and if such audit indicates a Franchise Fee and/or in-lieu fee underpayment of two percent (2%) or more, Grantee shall assume all reasonable costs of such audit.

2. Except as otherwise provided by law, no acceptance of any payment by City shall be construed as a release or as an accord and satisfaction of any claim City may have for further or additional sums payable as a Franchise Fee and/or in-lieu fee under this Chapter or for the performance of any other obligation of Grantee.

3. In the event that any Franchise and/or in-lieu fee payment or recomputed amount is not made on or before the dates specified in the Franchise Agreement, Grantee shall pay as additional compensation:

a. An interest charge, computed from such due date, at an annual rate equal to the prime lending rate of the Chase Manhattan Bank, N.A., plus one percent (1%) during the period for which payment was due; and

b. If the payment is late by forty-five (45) days or more, a sum of money equal to five percent (5%) of the amount due in order to defray those additional expenses and costs incurred by City by reason of delinquent payment.

4. Franchise Fee and/or in-lieu fee payments shall be made in accordance with the schedule indicated in the Franchise Agreement.

B. Security Fund. City may require Grantee to provide a security fund, in an amount and form established in the Franchise Agreement. The amount of the security fund shall be established based on the extent of Grantee's obligations under the terms of the Franchise.

1. The security fund shall be available to City to satisfy all claims, liens and/or taxes due City from Grantee which arise by reason of construction, operation, or maintenance of the System, and to satisfy any actual or liquidated damages arising out of a breach or default under the Franchise, subject to the procedures and amounts designated in a Franchise Agreement.

2. If the security fund is drawn upon by City in accordance with the procedures established in this Chapter and the Franchise Agreement, Grantee shall cause the security fund to be replenished to the original amount no later than thirty (30) days after notice of a withdrawal by City. Failure to replenish the security fund shall be deemed a material breach of the Franchise. (Ord. C-7471 § 1, 1997)

15.74.040 Construction requirements.

A. System Construction and Upgrade.

1. Every Grantee under this Chapter shall, from time to time, upgrade its facilities, equipment and service so that its Cable System is as advanced as the then-current state of technology will allow. Among other things, Channel capacity shall be kept equal to reasonable user demand.

2. Grantee shall not construct any Cable System facilities until Grantee has secured the necessary permits from City, or other cognizant public agencies.

3. In those areas of the City where transmission lines or distribution facilities of the public utilities providing telephone and electric power service are underground, Grantee likewise shall construct, operate and maintain its transmission and distribution facilities therein underground.

4. In those areas of the City where Grantee's cables are located on the above-ground transmission or distribution facilities of the public utility providing telephone or electric power service, and in the event that the facilities of both such public utilities subsequently are placed underground, then Grantee likewise shall reconstruct, operate and maintain its transmission and distribution facilities underground, at Grantee's cost. Certain of Grantee's equipment, such as pedestals, amplifiers and power supplies, which normally are placed above ground, may continue to remain in above ground enclosures, unless otherwise provided in the Franchise Agreement.

5. Any changes in or extensions of any poles, anchors, wires, cables, conduits, vaults, laterals or other fixtures and equipment (herein referred to as "structures"), or the construction of any additional structures, in, upon, along, across, under or over the Public Way shall be made under the direction of City's City Engineer or a designee, who shall, if the proposed change, extension or construction conforms to the provisions hereof, issue written permits therefor. The height above public thoroughfares of all aerial wires shall conform to the requirements of the California regulatory body having jurisdiction thereof.

a. Grantee shall utilize existing poles, conduits, and other facilities whenever possible, and shall not construct or install any new, different, or additional poles or conduits whether on public property or on privately owned property unless

and until all required permits have been obtained. Existing agreements or wires on poles making use impossible or likely to cause delays which would interfere with the time schedule for construction, shall not suspend Grantee's obligation to construct and install the System in accordance with the time schedule contained in a Franchise Agreement. In such cases Grantee shall underground the cable.

b. Grantee shall assume all responsibility for gaining permission from any electric, gas or telephone utility in the City for the use, rental or lease of poles, underground conduits and other structures and facilities for the purpose of extending, carrying or laying franchisee's wires, cables, electronic conductors and other facilities and appurtenances necessary or desirable in conjunction with the establishment and operation of the cable system. Whenever grantee does not utilize existing poles, conduits and other facilities, or whenever existing conduits and other facilities are located beneath the surface of the streets, or whenever the City undertakes a program designed to cause all conduits and other facilities to be located beneath the surface of the streets in any area or throughout the City, in the exercise of its police power or pursuant to the terms hereof, upon reasonable notice to a grantee, any such conduits or other facilities of grantee shall be constructed, installed, placed, or replaced beneath the surface of the streets. Any construction, installation, placement, replacement, or changes which may be so required shall be made at the expense of grantee, whose costs shall be determined as in the case of public utilities.

c. City shall have the right, free of charge, to make additional use, for any public or municipal purpose, whether governmental or proprietary, of any poles, conduits, or other similar facilities erected, controlled, or maintained exclusively by or for grantee in any street, provided such use by City does not interfere with the use by grantee.

6. All transmission and distribution structures, lines and equipment erected by grantee shall be located so as not to interfere with the proper use of public rights-of-way, and to cause minimum interference with the rights or reasonable convenience of property owners who adjoin any of the said public rights-of-way, and not to interfere with existing public utility installations.

a. In the event that any property or improvement of City in the public rights-of-way is disturbed or damaged by grantee or any of its contractors, agents or employees in connection with undertaking any and all work pursuant to the right granted to grantee pursuant to this Chapter, grantee shall promptly, at grantee's sole cost and expense, restore as nearly as practicable to their former condition said property or improvement which was so disturbed or damaged, and in the event that any such property or improvement shall at any later time become uneven, unsettled or otherwise require restoration, repair or replacement because of such disturbance or damage by grantee, then grantee, as soon as reasonably possible, shall, promptly upon receipt of notice from City and at grantee's sole cost and expense, restore as nearly as practicable to their former condition said property or improvement which was disturbed or damaged. Any such restoration by grantee shall be made in accordance with such materials and specifications as may, from time to time, be then provided for by ordinance adopted by City.

b. Prior to commencing any work in the public rights-of-way, grantee shall obtain any and all permits lawfully required by the applicable codes and ordinances of the City. In the event that emergency work may be required by grantee, however, grantee shall obtain any and all such permits within three (3) working days after the beginning of such emergency work.

c. There shall be no unreasonable or unnecessary obstruction of the public rights-of-way by grantee in connection with any of the work herein provided for, and grantee shall maintain such barriers, signs and warning signals during any such work performed on or about the public rights-of-way or adjacent thereto as may be necessary to reasonably avoid injury or damage to life and property.

d. If, during the period of any franchise, City shall lawfully elect to alter or change the grade or

location of any public rights-of-way, grantee shall, upon reasonable notice by City, remove, relay and relocate its poles, wires, cables, underground conduits, manholes and other fixtures at its own expense, and in each instance comply with the requirements of City.

e. Grantee shall not place poles, conduits or other fixtures above or below ground where the same will interfere with any gas, electric, telephone fixtures, water hydrants or other utility, and all such poles, conduits or other fixtures placed in any public rights-of-way shall be so placed as to comply with all ordinances of City.

f. Grantee may be required by City to permit joint use of its property and appurtenances located in the public rights-of-way, by utilities insofar as such joint use may be reasonably practicable and upon payment of reasonable rent therefor; provided that in the absence of agreement regarding such joint use, City Council shall provide for arbitration of the terms and conditions of such joint use and the compensation to be paid therefrom, which award shall be final.

g. Grantee shall, on request of any person holding a moving permit issued by City, temporarily move its wires or fixtures to permit the moving of buildings, the expense of such temporary removal to be paid by the person requesting the same, and grantee shall be given not less than forty-eight (48) hours' advance notice to arrange for such temporary changes.

h. Grantee shall have the authority, except when in conflict with existing City ordinances, to trim any trees upon and overhanging the public way so as to prevent the branches of such trees from coming in contact with the wires and cables of grantee, except that at the option of City, such trimming may be done by it, or under its supervision and direction, at the expense of grantee.

B. Multiple franchises. In the event that more than two (2) franchises are awarded, City reserves the right to limit the number of drop cables per residence, or to require that the drop cable(s) be utilized only by the cable operator selected by the resident to provide service. (Ord. C 7471 § 1, 1997)

15.74.045 Technical standards.

A. Applicable technical standards. Grantee shall construct, install, operate and maintain its system in a manner consistent with all applicable laws, ordinances, construction standards, governmental requirements, FCC technical standards, and any detailed standards set forth in its franchise agreement. In addition, grantee shall provide to City, upon request, a written report of the results of grantee's periodic proof of performance tests conducted pursuant to FCC and franchise standards and guidelines.

B. Noncompliance with standards. Repeated and verified failure to maintain specified technical standards shall constitute a material breach of the franchise. (Ord. C 7471 § 1, 1997)

15.74.050 Indemnity and insurance.

A. Grantee shall defend, indemnify and hold harmless the City, its officials, employees and agents from and against all claims, demands, damage, causes of action, proceedings, loss, liability, costs and expenses (including reasonable attorney fees) of any kind (collectively in this Section, "claim") alleging injury to or death of persons or damage to property and that such injury, death or damage arises from or is attributable to or caused by the activities of grantee under the franchise agreement.

B. On or before commencement of operations under the franchise agreement and at all times during the term of the franchise agreement, grantee shall, at its sole cost, maintain in full force and effect insurance as prescribed in regulations issued by the City Manager pursuant to Section 2.84.040.

The procuring of said insurance shall not be construed as a limitation on grantee's liability or as full performance on grantee's part of the indemnity provisions of this Chapter.

If grantee fails to maintain insurance, City shall, on forty-eight (48) hours' notice to grantee, have the right to procure the required insurance and grantee shall promptly pay the cost thereof to the City. City shall also have the right to suspend the effectiveness of the franchise agreement dur-

ing any period that grantee fails to maintain said insurance. City may order grantee to increase the amounts of insurance required in the franchise agreement after conducting a duly noticed public hearing. Increases in insurance coverage shall be based upon current prudent business practices of like enterprises involving the same or similar risks. (Ord. C 7934 § 22, 2004: Ord. C 7471 § 1, 1997)

15.74.055 Records and reports.

A. Records required. Grantee shall at all times maintain:

1. A record of all service calls and interruptions or degradation of service experienced for the preceding two (2) years, provided that such complaints result in or require a service call, subject to the subscriber's right of privacy.

2. A full and complete set of plans, records and "as built" maps showing the locations of the cable system installed or in use in the City, exclusive of subscriber service drops and equipment provided in subscriber's homes.

3. If requested by City, a summary of service calls, identifying the number, general nature and disposition of such calls, on a monthly basis. A summary of such service calls shall be submitted to City within thirty (30) days following any City request, in a form reasonably acceptable to City.

a. Subject to applicable law, City may impose reasonable requests for additional information, records and documents from time to time, provided they reasonably relate to the scope of the City's rights under this Chapter or a franchise agreement.

b. Upon reasonable notice, and during normal business hours, grantee shall permit examination by any duly authorized representative of City of all franchise property and facilities, together with any appurtenant property and facilities of grantee situated within or without the City, and all records relating to the franchise, provided they are necessary to enable City to carry out its regulatory responsibilities under this Chapter or the franchise agreement. Grantee shall have the right to be present at any such examination.

B. Reports—Requirements. Within one hundred twenty (120) days after the end of each year during the term of a franchise agreement, grantee shall submit a written report to the City Manager, in a form approved by the City Manager, including, but not limited to, the following information regarding the previous calendar year:

1. A summary of activities in the development of the system, including, but not limited to, services begun or discontinued, total number of subscribers, homes passed, subscribers added or discontinued and institutional network development and user participation, all in accordance with the provisions of this Chapter and the franchise agreement.

2. A list of all service related complaints received and system "downtime" experienced during the reporting period. All such submitted data shall include complaint disposition and response time. For the purposes of this Section, certified copies of the complaint log book reflecting all such incidents will suffice.

3. A summary by category of complaints, identifying the number and nature of complaints and their dispositions.

4. Financial statements to be audited by an independent certified public accountant which include a balance sheet, detailed statement of income, detailed statement of operating expense, detailed statement of capital assets with a schedule of depreciation and a statement of changes in financial position.

5. A current statement of construction costs by category if any are incurred during the reporting period.

6. A projected income statement, balance sheet, statement of changes in financial position and statement of projected construction for the next two (2) years.

7. A reconciliation between previously projected construction and financial estimates, as the case may be, and actual results.

8. A list of officers and members of the Board of Directors of grantee and its parent, subsidiary or affiliate corporations, if any.

9. A list of stockholders holding three percent (3%) or more of the voting stock of grantee or its parent, subsidiary and affiliate corporations, if any.

10. A copy of grantee's annual report and those of its parent, subsidiary and affiliate corporations, if any.

11. A full schedule of all subscriber and user rates, advertising rates, leasing rates, fees and charges for all cable services provided.

12. Such other information or reports as the City Manager may request, including, but not limited to, the following special reports:

a. A biennial opinion survey report which identifies subscriber satisfaction/dissatisfaction with cable system services offered by grantee. Surveys required to make such report shall be conducted in conformance with such requirements, including supervision, as the City may prescribe. The cost of such survey shall be borne by grantee.

b. Annual plant survey report which shall be a complete survey of Grantee's plant and a full report thereon. The purpose of such report is to assure the City that the technical standards of the FCC and City are achieved and maintained. Such report shall include, but not be limited to, an appropriate engineering evaluation including suitable electronic measurements and shall be conducted in conformance with such requirements, including supervision, as the City may prescribe.

c. A copy of Subscriber and user agreements used by Grantee.

13. The reports submitted pursuant to this Section shall be available for public inspection in the office of the City Clerk during City business hours.

14. Grantee shall file simultaneously with the City, a copy of any document Grantee files with the FCC, the Securities and Exchange Commission or any other regulatory agency with jurisdiction pertaining to the Cable System. To the extent that such documents contain, to the satisfaction of the City Manager, the information required by other reports required by this Chapter, the City Manager may suspend the requirements to file such other reports with City so as to avoid duplication and the administrative costs attendant thereto.

15. Any material misrepresentation made by Grantee in any report required by this Section shall subject Grantee to the penalty provisions of this Chapter and shall subject Grantee to all remedies available to City.

16. City reserves the right during normal business hours and upon the giving of reasonable notice, to examine, audit, review and obtain copies of Grantee's contracts, engineering plans, accounting, financial data and service records relating to the property and operations of Grantee and to all other records required to be kept pursuant to Subsection 15.74.055.A herein. City may, by written request, require Grantee to have a special review prepared by certified independent Auditors to explain any discrepancies between revenues used to calculate the Franchise Fee and revenues reported to Grantee's annual audited financial statements.

17. Grantee shall keep full, true, accurate and current books of account reflecting Grantee's investment and operations under Grantee's Franchise, and said books shall be made available for inspection and copying by an authorized representative of the City at reasonable times. The chart of accounts and accounting systems used in such books of account shall be designed to accurately determine Grantee's cost of operations as well as Gross Annual Cable Service Revenues in accordance with generally accepted accounting principles and this Chapter, and shall be in a form satisfactory to City.

C. Reports—Filing, Inspection and Follow-up. The reports required by Subsection 15.74.055.B shall be examined by the City Manager for compliance with the requirements of the Franchise Agreement, this Chapter and any specifications established by the City Manager governing their form. The City Manager shall inform Grantee in writing within forty-five (45) days of the date of receipt of the reports whether the reports are or are not in compliance with such requirements. If found not in compliance, the reports, or portions

thereof, shall be rejected and returned to Grantee with a statement of reasons for such rejection. Any such information so rejected shall be null and void. Grantee shall, within fifteen (15) days of written rejection from the City Manager, submit amended reports, or portions thereof, to the City Manager.

D. Reports—Confidentiality. Notwithstanding anything to the contrary contained in this Chapter, all reports or documents required to be delivered or otherwise disclosed under this Chapter, except those required by law or agreement to be kept confidential, shall be available for public inspection in the City's offices during normal business hours.

E. Examination of Records. At all reasonable times, Grantee shall permit any duly authorized representative of the City to examine all property of Grantee, together with any appurtenant property of Grantee situated within or without the City, and to examine and transcribe any and all maps and other records kept or maintained by Grantee or under its control which deal with the operations, affairs, transactions or property of Grantee with respect to its Franchise. If any such maps or records are not kept in the City or, upon reasonable request, made available in the City within five (5) days of request by City, then all travel and maintenance expense necessarily incurred in making such examination shall be paid by Grantee. (Ord. C-7471 § 1, 1997)

15.74.060 Review of system performance.

A. Performance Evaluation Sessions—Purpose and Procedure. To provide for technological advances in the state of the art in Cable Systems, to promote the maximum degree of flexibility and utilization of the System, to evaluate Grantee's performance and compliance with the provisions of this Chapter and any Franchise awarded pursuant thereto, to respond to regulatory changes and to achieve a continuing, advanced, modern Cable System, City and Grantee shall comply with the following review procedures:

1. City may hold a regularly scheduled review session within thirty (30) days of the second anniversary date of the execution of the Franchise Agreement and subsequently every two (2) years thereafter. All review sessions shall be open to the public, and notice of date, time, location and agenda shall be given by Grantee, at Grantee's cost, by publication at least once in a newspaper of City-wide general circulation at least one (1) week prior to each session. In addition, Grantee shall announce the date, time and location of each session on each of at least five (5) days immediately preceding each session at a minimum of six (6) regularly scheduled intervals daily on at least two (2) Channels and shall notify all Subscribers by including notice with the previous monthly billing.

2. Topics for discussion and review at the regular review session shall include, but not be limited to, the following: rate structure, free or discounted services, application of new technologies, System performance, services provided, programming, Subscriber complaints, user complaints, rights of privacy, construction progress, community service Channel implementation and utilization, amendments to this Chapter, undergrounding process and developments in the law. Either City or Grantee may select additional topics for discussion at any regular or special review session conducted pursuant to this Subsection or Subsection 15.74.060.B below.

B. Special Review. When there have been complaints made or where there exists other evidence which, in the judgment of City, casts reasonable doubt on the reliability or quality of Cable Service to the effect that Grantee is not in compliance with the requirements of this Chapter or its Franchise, City shall have the right to compel Grantee to test, analyze and report on the performance of the System in order to protect the public against substandard Cable Service. City may not compel Grantee to provide such tests or reports unless and until City has provided Grantee with at least thirty (30) days' notice of its intention to exercise its rights under this Section and has provided Grantee with an opportunity to be heard prior to its exercise of such rights. Such test or tests shall be made and the report shall be delivered to City no later than thirty (30) days after City notifies Grantee

that it is exercising such right, and shall be made at Grantee's sole cost. Such report shall include the following information: the nature of the complaints which precipitated the special tests, what System component was tested, the equipment used and procedures employed in said testing, the results of such tests, and the method by which such complaints were resolved. Any other information pertinent to the special test shall be recorded. (Ord. C-7471 § 1, 1997)

15.74.065 Franchise violations.

A. Remedies for Violations. Subject to Section 15.74.070 of this Chapter, if Grantee fails to perform in a timely manner any material obligation required by this Chapter or a Franchise granted hereunder, following notice from City and an opportunity to cure such nonperformance in accordance with the provisions of Subsection 15.74.065.B, City may at its option and in its sole discretion:

1. Cure the violation and recover the actual cost thereof from the security fund established herein if such violation is not cured within thirty (30) days after written notice to Grantee of City's intention to cure and draw upon the security fund;

2. Assess against Grantee liquidated damages in an amount set forth in the Franchise Agreement for any such violations(s) if such violation is not cured, or if Grantee has not commenced a cure, on a schedule acceptable to City, within thirty (30) days after written notice to Grantee of City's intention to assess liquidated damages. Such assessment may be withdrawn from the security fund, and shall not constitute a waiver by City of any other right or remedy it may have under the Franchise or applicable law, including without limitation, its right to recover from Grantee such additional damages, losses, costs and expenses, including reasonable actual Attorney fees, as may have been suffered or incurred by City by reason of or arising out of such breach of the Franchise.

B. Procedure for Remedying Franchise Violations. Prior to imposing any remedy or other sanction against Grantee specified in this Chapter, City shall give Grantee notice and opportunity to be heard on the matter, in accordance with the following procedures:

1. City shall first notify Grantee of the violation in writing by personal delivery or registered or certified mail, and demand correction within a reasonable time, which shall not be less than twenty (20) days in the case of the failure of Grantee to pay any sum or other amount due City under this Chapter or Grantee's Franchise and thirty (30) days in all other cases. If Grantee fails to correct the violation within the time prescribed or if Grantee fails to commence correction of the violation within the time prescribed and diligently remedy such violation thereafter, City shall then give written notice of not less than twenty (20) days of a public hearing to be held before the City Council. Said notice shall specify the violations alleged to have occurred.

2. Subsequent to the public hearing, City Council shall hear and consider all other relevant evidence, and thereafter render findings and its decision.

3. In the event City Council finds that Grantee has corrected the violation or has diligently commenced correction of such violation after notice thereof from City and is diligently proceeding to fully remedy such violation, or that no material violation has occurred, the proceedings shall terminate and no penalty or other sanction shall be imposed.

4. In the event City Council finds that material violations exist and that Grantee has not corrected the same in a satisfactory manner or has not diligently commenced correction of such violation after notice thereof from City and is not diligently proceeding to fully remedy such violation, City Council may impose one (1) or more of the remedies provided in this Chapter and the Franchise Agreement as it, in its discretion, deems appropriate under the circumstances.

C. City's Power to Revoke. City reserves the right to revoke any Franchise granted pursuant to this Chapter and rescind all rights and privileges

associated with it in the following circumstances, each of which shall represent a default by Grantee and a material breach under the Franchise:

1. If Grantee shall default in the performance of its material obligations under this Chapter or the Franchise Agreement and shall continue such default after receipt of due notice and reasonable opportunity to cure the default;

2. If Grantee shall fail to provide or maintain in full force and effect the insurance coverage or security fund as required in the Franchise Agreement;

3. If Grantee shall violate any order or ruling of any regulatory body having jurisdiction over Grantee relative to the Franchise, unless such order or ruling is being contested by Grantee by appropriate proceedings conducted in good faith;

4. If Grantee practices any fraud or deceit upon City;

5. If Grantee becomes insolvent, unable or unwilling to pay its debts, or is adjudged a bankrupt.

Termination and forfeiture of the Franchise shall in no way affect any right of City to pursue any remedy against Grantee under the Franchise or any provision of applicable law. (Ord. C-7471 § 1, 1997)

15.74.070 Force majeure; Grantee's inability to perform.

In the event Grantee's performance of any of the terms, conditions or obligations required by this Chapter or a Franchise is prevented by a cause or event not within Grantee's control, such inability to perform shall be deemed excused and no penalties or sanctions shall be imposed as a result thereof; provided, however, that such inability to perform shall not relieve a Grantee from the obligations imposed by Section 15.74.030 pertaining to refunds and credits for interruptions in Cable Service. For the purpose of this Section, causes or events not within the control of Grantee shall include, without limitation, acts of God, strikes, sabotage, riots or civil disturbances, restraints imposed by order of a governmental agency or court, explosions, acts of public enemies, and natural disasters such as floods, earthquakes, landslides, and fires, but shall not include financial inability of Grantee to perform or failure of Grantee to obtain any necessary permits or licenses from other governmental agencies or the right to use the facilities of any public utility where such failure is due solely to the acts or omissions of Grantee, or the failure of Grantee to secure supplies, services or equipment necessary for the installation, operation, maintenance or repair of the Cable System where Grantee has failed to exercise reasonable diligence to secure such supplies, services or equipment. (Ord. C-7471 § 1, 1997)

15.74.075 Abandonment or removal of Franchise property.

A. Abandonment or Removal. In the event that the use of any property of Grantee within the Public Rights-of-Way is discontinued for a continuous period of twelve (12) months, Grantee shall be deemed to have abandoned that Franchise property. Any part of the Cable System that is parallel or redundant to other parts of the System and is intended for use only when needed as a backup for the System or a part thereof, shall not be deemed to have been abandoned because of its lack of use.

1. City, upon such terms as City may impose, may give Grantee permission to abandon, without removing, any System facility or equipment laid, directly constructed, operated or maintained under the Franchise. Unless such permission is granted or unless otherwise provided in this Chapter, Grantee shall remove all abandoned above ground facilities and equipment upon receipt of written notice from City and shall restore any affected Public Rights-of-Way to its former state at the time such facilities and equipment were installed, so as not to impair its usefulness. In removing its plant, structures and equipment, Grantee shall refill, at its own expense, any excavation that shall be made by it and shall leave the Public Rights-of-Way in as good condition as that prevailing prior to such removal without materially interfering with any electrical or telephone cable or other utility wires, poles, or attachments. City shall have the right to inspect and approve the condition of the

Public Rights-of-Way, cables, wires, attachments and poles prior to and after removal. The liability, indemnity and insurance provisions of this Chapter and the security fund as provided herein shall continue in full force and effect during the period of removal and until full compliance by Grantee with the terms and conditions of this Section.

2. Upon abandonment of any Franchise property in place, Grantee, if required by City, shall submit to City an instrument, satisfactory in form to City, transferring to City the ownership of the Franchise property abandoned.

3. At the expiration of the term for which a Franchise is granted, or upon its revocation or earlier expiration, as provided herein, in any such case without renewal, extension or transfer, City shall have the right to require Grantee to remove, at its own expense, all above ground portions of the Cable System from the Public Rights-of-Way within the City within a reasonable period of time, which shall not be less than one hundred eighty (180) days.

4. Notwithstanding anything to the contrary set forth in this Chapter, Grantee may abandon any underground Franchise property in place so long as it does not materially interfere with the use of the Public Rights-of-Way in which such property is located or with the use thereof by any public utility or other Grantee.

B. Restoration by City: Reimbursement of Costs. In the event of a failure by Grantee to complete any work required herein or by any other law or ordinance, and if such work is not completed within thirty (30) days after receipt of written notice thereof from City or, if more than thirty (30) days are reasonably required therefor, if Grantee does not commence such work within such thirty (30) day period and diligently complete the work thereafter (except in cases of emergency constituting a threat to public health, safety or welfare), City may cause such work to be done and Grantee shall reimburse City the costs thereof within thirty (30) days after receipt of an itemized list of such costs, or City may recover such costs through the security fund provided by Grantee.

C. Extended Operation and Continuity of Services. Upon expiration or revocation of the Franchise, City shall have the discretion to permit Grantee to continue to operate the Cable System for an extended period of time. Grantee shall continue to operate the System under the terms and conditions of this Chapter and the Franchise Agreement and to provide Cable Service and any and all of the services that may be provided at that time. It shall be the right of all Subscribers to continue to receive all available services provided that financial and other obligations to Grantee are honored. Grantee shall use reasonable efforts to provide continuous, uninterrupted Cable Service to its Subscribers, including operation of the System during transition periods following Franchise expiration or termination.

D. Receivership and Foreclosure. A Franchise granted hereunder shall, at the option of City, cease and terminate one hundred twenty (120) days after appointment of a receiver or receivers, or trustee or trustees, to take over and conduct the business of Grantee, whether in a receivership, reorganization, bankruptcy or other action or proceeding, unless such receivership or trusteeship shall have been vacated prior to the expiration of said one hundred twenty (120) days, or unless: (1) such receivers or trustees shall have, within one hundred twenty (120) days after their election or appointment, fully complied with all the terms and provisions of this Chapter and the Franchise granted pursuant hereto, and the receivership or trustees within said one hundred twenty (120) days shall have remedied any and all defaults or breaches under this Chapter or the Franchise Agreement or provided a plan for the remedy of such defaults or breaches which is satisfactory to City in its sole discretion; and (2) such receivers or trustees shall, within said one hundred twenty (120) days, execute an agreement, in a form approved by the City Attorney and duly approved by the court having jurisdiction over the proceeding, whereby such receiver or trustee assumes and agrees to be bound by each and every provision of this Chapter and the Franchise granted pursuant hereto.

1. In the case of a foreclosure or other judicial sale of the Franchise property, or any material

part thereof, City may serve notice of termination upon Grantee and the successful bidder at such sale, in which event the Franchise granted and all rights and privileges of Grantee hereunder shall cease and terminate thirty (30) days after service of such notice, unless:

(a) City shall have approved the transfer of the Franchise, as and in the manner that this Chapter provides; and (b) such successful bidder shall have covenanted and agreed with City in writing in a form approved by the City Attorney, to assume and be bound by all provisions of this Chapter and the Franchise granted pursuant hereto. (Ord. C-7471 § 1, 1997)

15.74.080 City and Subscriber rights.

A. Reservation of City Rights.

1. In addition to any rights specifically reserved to City by this Chapter, City reserves to itself every right and power which is required to be reserved by a provision of any ordinance or under the Franchise. Without limitation upon the rights which City might otherwise have, City does expressly reserve the following rights, powers and authorities, and by its acceptance of the Franchise, Grantee agrees to be bound thereby by City rights and powers:

a. To grant multiple nonexclusive Franchises within the City to other Persons for the operation of Systems pursuant to this Chapter and as it may be amended;

b. To inspect all construction or installation work performed by Grantee;

c. To amend any section or part of this Chapter for any reason determined to be desirable or necessary by the City Council in the exercise of its legislative powers, including, but not limited to, new developments in the state of technology of the cable communications industry and changes in Federal or State laws, rules or regulations; provided, however, that any such amendments are reasonable. Such amendments shall be adopted only after a public hearing where Grantee shall have received written notice at least thirty (30) days prior to the hearing and is provided any opportunity to be heard.

2. In the event City terminates a franchise agreement pursuant to the provisions of Subsection 15.74.065.C, City shall have the first option, directly or as an intermediary, to purchase the System. The City shall have ninety (90) days prior to the effective date of termination to notify Grantee of the City's intent to exercise the option to purchase stated herein.

3. Upon notification of intent pursuant to Subsection 15.74.080.A.2, City and Grantee shall attempt to mutually agree upon the value of the System in accordance with the provisions of Subsections 15.74.080.A.3 and 15.74.080.A.4. However, if within a reasonable period of time they cannot agree upon a valuation, then such valuation shall be similarly determined by a three (3) member board of appraisers, one (1) selected by the City, one (1) selected by the Grantee, and one (1) selected by the appraisers themselves. The cost of such appraisal shall be borne equally by the City and the Grantee.

4. In the event of a termination of a Franchise Agreement by the City, the value of the System shall be solely based on the book value of the tangible assets of the System.

a. "Book value" is defined as the original or historical cost of the assets less accumulated depreciation, and no value shall be assigned to either the franchise itself, the franchise agreement or any right, privilege or expectancy arising out of the privilege to transact business under the franchise or the franchise agreement, nor shall any value be assigned to goodwill or as a going concern.

b. "Value" as referred to herein shall be determined by audit of system assets pursuant to generally accepted auditing principles, and shall be performed by a certified public accounting firm selected by the City at franchisee's expense.

c. Upon normal expiration of a Franchise Agreement, the value of the System shall be based solely on the basis of fair market value of the System, valued as a going concern, including both tangible and intangible assets. Nothing contained herein shall be construed to limit or restrict any right to renew a Franchise Agreement under the terms of the Franchise Agreement or applicable law.

5. There is reserved to City every additional right and power which is required to be herein reserved or provided by any law and Grantee, by its acceptance of the Franchise, agrees to be bound thereby and to comply with any action or requirements of City in its exercise of such rights or power, heretofore or hereafter enacted or established.

6. Nothing herein shall be deemed or construed to impair or affect, in any way, to any extent, the right of City to acquire the property of Grantee through the exercise of the right of eminent domain.

7. In the event that the Federal Communications Commission elects to deregulate any area of cable communications over which it currently exercises jurisdiction, or grant authority to municipalities to regulate in these areas, any Franchise shall be automatically amended, except as specifically prohibited by a Franchise Agreement, without any additional act by any party to it, to reflect these new Municipal regulatory powers, and City may, if it so elects, adopt rules and regulations in these areas.

B. Waiver. City shall have the right to waive any provision of the Franchise, except those required by Federal or State regulation, if City determines (1) that it is in the public interest to do so, and (2) that the enforcement of such provision will impose an undue hardship on Grantee or the Subscribers. To be effective, such waiver shall be evidenced by a statement in writing signed by a duly authorized representative of City. Waiver of any provision in one instance shall not be deemed a waiver of such provision subsequent to such instance nor be deemed a waiver of any other provision of the Franchise unless the statement so recites.

C. Rights of Individuals. Grantee shall not deny service, deny access, or otherwise discriminate against Subscribers, channel users, or general citizens on the basis of race, color, religion, national origin, age or sex. Grantee shall comply at all times with all other applicable Federal, State and local laws and regulations relating to nondiscrimination.

1. Grantee shall adhere to the applicable equal employment opportunity requirements of Federal, State and local regulations, as now written or as amended from time to time.

2. Neither Grantee, nor any Person, agency, or entity shall, without the Subscriber's consent, tap, or arrange for the tapping, of any cable, line, signal input device, or Subscriber outlet or receiver for any purpose except routine maintenance of the System, detection of unauthorized service, polling with audience participation, or audience viewing surveys to support advertising research regarding viewers where individual viewing behavior cannot be identified.

3. In the conduct of providing Cable Services or in pursuit of any collateral commercial enterprise resulting therefrom, Grantee shall take reasonable steps to prevent the invasion of a Subscriber's right of privacy or other personal rights through the use of the System as such rights are delineated or defined by applicable law. Grantee shall not without lawful court order or other applicable valid legal authority utilize the System's interactive two-way equipment or capability for unauthorized personal surveillance of any Subscriber.

4. No cable line, wire amplifier, converter, or other piece of equipment owned by Grantee shall be installed by Grantee in the Subscriber's premises, other than in appropriate easements, without first securing any required consent. If a Subscriber requests service, permission to install upon Subscriber's property shall be presumed.

5. Grantee, and any of its agents or employees, shall strictly observe and protect the rights of privacy and of property of Subscribers and users at all times in accordance with all applicable rules, regulations, laws, ordinances and orders of all governmental authorities having jurisdiction over such matters. (Ord. C-7471 § 1, 1997)

15.74.085 Severability.

If any provision of this Chapter is held by any court or by any Federal or State agency of compe-

tent jurisdiction, to be invalid as conflicting with any Federal or State law, rule or regulation now or hereafter in effect, or is held by such court or agency to be modified in any way in order to conform to the requirements of any such law, rule or regulation, such provision shall be considered a separate, distinct, and independent part of this Chapter, and such holding shall not affect the validity and enforceability of all other provisions hereof. In the event that such law, rule or regulation is subsequently repealed, rescinded, amended or otherwise changed, so that the provision thereof which had been held invalid or modified is no longer in conflict with such law, rule or regulation, said provision shall thereupon return to full force and effect and shall thereafter be binding on City and Grantee, provided that City shall give Grantee thirty (30) days′ written notice of such change before requiring compliance with said provision or such longer period of time as may be reasonably required for Grantee to comply with such provision. (Ord. C-7471 § 1, 1997)

CHAPTER 15.75 REGULATION OF STATE VIDEO FRANCHISE HOLDERS

15.75.010 Purpose and authority.

This Chapter is designed to regulate video service providers holding State video franchises and operating within the City.

As of January 1, 2007, the state of California has sole authority to grant State video franchises pursuant to the Digital Infrastructure and Video Competition Act of 2006 (the ″Act″). Pursuant to the Act, City is entitled to receive a franchise fee and a fee for public, educational and government (PEG) purposes from all State video franchise holders operating within the City. Additionally, the Act permits City to establish and enforce penalties, consistent with State law, against all State video franchise holders operating within the City for violations of customer service standards. The Act leaves unchanged the City′s authority to regulate the City′s current cable franchise in accordance with Chapter 15.74, until such time as the current cable franchisee no longer holds a City franchise or is no longer operating under a current or expired City franchise. (ORD-07-0041 § 1 (part), 2007)

15.75.020 State video franchise and PEG fees.

A. Any State video franchise holder (″State franchise″) operating within the boundaries of the City of Long Beach, shall pay a fee to the City equal to five percent (5%) of the gross revenue of that State franchise.

B. Any State franchise operating within the boundaries of the City of Long Beach, shall pay an additional fee to the City equal to 1.04% of the gross revenue of that State franchise, which fee shall be used by the City for PEG purposes consistent with State and federal law.

C. Gross revenue, for the purposes of Subsections A and B above, shall have the definition set forth in California Public Utilities Code Section 5860. (ORD-07-0041 § 1 (part), 2007)

15.75.030 Audit authority.

Not more than once annually, the City Manager or his or her designee may examine and perform an audit of the business records of a State franchise to ensure compliance with this Chapter. (ORD-07-0041 § 1 (part), 2007)

15.75.040 Customer service penalties under State franchises.

A. The holder of a State franchise shall comply with all applicable State and federal customer service and protection standards pertaining to the provision of video service.

B. The City Manager or his or her designee shall monitor the compliance of State franchises with respect to State and federal customer service and protection standards. The City Manager or designee shall provide the State franchisee(s) holder written notice of any material breaches of applicable customer service standards, and shall allow the State franchisee(s) thirty (30) days from the receipt of the notice to remedy the specified material breach. Material breaches not remedied within

the thirty (30) day time period shall be subject to the following penalties to be imposed by the City:

1. For the first occurrence of a violation, a penalty of five hundred dollars ($500.00) shall be imposed for each day the violation remains in effect, not to exceed one thousand five hundred dollars ($1,500.00) for each violation.

2. For a second violation of the same nature within twelve (12) months, a penalty of one thousand dollars ($1,000.00) shall be imposed for each day the violation remains in effect, not to exceed three thousand dollars ($3,000.00) for each violation.

3. For a third or further violation of the same nature within twelve (12) months, a penalty of two thousand five hundred dollars ($2,500.00) shall be imposed for each day the violation remains in effect, not to exceed seven thousand five hundred dollars ($7,500.00) for each violation.

C. A State franchise holder may appeal a penalty assessed by the City Manager to the City Council within sixty (60) days of the initial assessment. The City Council shall hear all evidence and relevant testimony and shall vote to either uphold, modify or vacate the penalty. The City Council's decision on the imposition of a penalty shall be final. (ORD-07-0041 § 1 (part), 2007)

15.75.050 City response to State franchise applicants.

A. Applicants for State video franchises within the boundaries of the City must concurrently provide complete copies to the City of any application or amendments to applications filed with the PUC. One (1) complete copy must be provided to the City Clerk, and one (1) complete copy to the City Manager.

B. The City Manager shall provide any appropriate comments to the PUC regarding an application or an amendment to an application for a State franchise in a timely manner. (ORD-07-0041 § 1 (part), 2007)

15.75.060 Reauthorization.

A. If any portion, sentence, clause or phrase of Long Beach Municipal Code Chapter 15.75 is found by a court of competent jurisdiction to be invalid because it is deemed to have expired, then the provisions of this section shall be controlling as of the original effective date of this section.

B. To the extent reauthorization is required by law upon the expiration of any and all state video franchises, as to each expiration of any affected state video franchisee, Long Beach Municipal Code Chapter 15.75 is hereby reauthorized as to that affected state video franchisee. Any and all reauthorizations under this Chapter shall be effective for so long as such reauthorization is required by law. (ORD-18-0021 § 1, 2018)

Title 16

PUBLIC FACILITIES AND HISTORICAL LANDMARKS

Chapter 16.04 Piers

16.04.010 Definitions.
16.04.020 Piers and bridges—Diving prohibited.
16.04.030 Fishing lines—Methods of casting.
16.04.040 Belmont Veterans' Memorial Pier—Prohibited acts.
16.04.050 Belmont Veterans' Memorial Pier—Hours open to public.
16.04.060 Belmont Veterans' Memorial Pier—Rules and regulations.
16.04.070 Fish nets - prohibited.
16.04.080 Fish nets - restrictions.
16.04.090 College Park Drive - acts prohibited.
16.04.100 Acts prohibited on embankments of San Gabriel River.

Chapter 16.08 Marinas

Article I. Definitions

16.08.010 Generally.
16.08.020 Alamitos Bay.
16.08.021 Alamitos Bay Marina Long Dock North.
16.08.022 Alamitos Bay Marina Long Dock South.
16.08.023 Alamitos Bay Marina Slip 3-2.
16.08.024 Reserved.
16.08.025 Alamitos Marina Slip 13-2.
16.08.026 Alamitos Marina Slip 14-1.
16.08.030 Auxiliary.
16.08.040 Bureau.
16.08.050 Channels and turning basins.
16.08.060 City Manager.
16.08.070 Director.
16.08.080 Dock.
16.08.081 Docking.
16.08.090 Shoreline Marina.
16.08.100 Float.
16.08.101 Harbormaster's Dock—Alamitos Bay Marina.
16.08.110 Long Beach Marina Area.
16.08.120 Los Cerritos drainage channel.
16.08.121 Marina Pacifica Channel and Basins.

16.08.122 Spinnaker Cove Channel and Basins.
16.08.130 Marina Basins.
16.08.140 Marinas.
16.08.150 Marine Stadium East.
16.08.160 Marine Stadium West.
16.08.170 Mooring.
16.08.180 Mooring area or anchoring area.
16.08.190 Motorboat.
16.08.200 Person.
16.08.210 Pier.
16.08.211 Pierpoint Landing Guest Dock.
16.08.220 Quay.
16.08.221 Rainbow Marina.
16.08.222 Rainbow Marina Dock 8.
16.08.223 Rainbow Harbor.
16.08.230 Sailing craft.
16.08.240 Sand dolly.
16.08.250 Shoreline.
16.08.261 Shoreline Aquatic Park.
16.08.263 Marina Park Long Dock.
16.08.264 Davies Long Dock.
16.08.265 Gangway A—Shoreline Marina.
16.08.266 Dock 10.
16.08.267 Alamitos Bay Pump-out Dock.
16.08.268 Rainbow Harbor Esplanade.
16.08.270 Slip.
16.08.280 Vessel.
16.08.290 Wharf.

Article II. Director of the Marine Bureau

16.08.300 Powers and duties.
16.08.310 Delegation of powers.
16.08.320 Harbor Master.
16.08.330 Appeal from cancellation of permit.
16.08.340 Power to arrest and prepare and issue and deliver written notice to appear.
16.08.341 Marine safety rescue boat captain.

Article III. General Regulations

16.08.350 Defacing public property.
16.08.360 Right-of-way.

16.08.370 Horns and signals.
16.08.380 Unseaworthy vessels.
16.08.390 Aircraft.
16.08.400 Vessel as place of abode—Permit.
16.08.410 Sale of fish.
16.08.420 Disposal of refuse.
16.08.430 Cleaning fish.
16.08.440 Digging holes on beaches.
16.08.450 Bait gathering.
16.08.460 Fishing restrictions.
16.08.470 Three mile per hour speed limit—Restricted areas.
16.08.471 Five mile per hour speed limit—Restricted area.
16.08.472 Reckless operation.
16.08.480 Waterskiing, aquaplaning and motorboat racing restricted.
16.08.490 Obstruction of access.
16.08.500 Automobile on wharves.
16.08.501 Automobiles on Rainbow Harbor Esplanade.
16.08.502 Bicycles on Rainbow Harbor Esplanade.
16.08.503 Roller skates, roller blades and skate boards on Rainbow Harbor Esplanade.
16.08.504 Commercial activity on Rainbow Harbor Esplanade.
16.08.510 Anchoring prohibited.
16.08.520 Mooring—Designated areas.
16.08.530 Mooring—Dangerous prohibited.
16.08.540 Mooring—Tying up to another vessel.
16.08.550 Mooring—By permit or temporary mooring.
16.08.551 Temporary mooring areas for vessels.
16.08.560 Petroleum product use.
16.08.570 Swimming prohibited.
16.08.580 Boarding vessels.
16.08.581 Sailboard boats.
16.08.582 Throwing rocks.
16.08.590 Obstructing officers in the performance of their duties.
16.08.600 Reserved.
16.08.610 Sand dolly use.
16.08.620 Tying up vessel.
16.08.630 Incoming and outgoing fairways.
16.08.640 Racing events.

Article IV Special Regulations

16.08.650 Marine Stadium West.

16.08.660 Boat operation in Marine Stadium East.
16.08.670 Small boat launching ramps—Marine Stadium West—Marine Stadium East.
16.08.680 No watercraft.
16.08.690 Beaching of vessels.
16.08.700 Derelicts and stray vessels.
16.08.710 Unseaworthy vessels.
16.08.720 Bait gathering—Permit.
16.08.730 Private pier location.

Article V. Private Piers, Wharves and Docks

16.08.740 Pierhead and bulkhead lines established.
16.08.750 Construction beyond bulkhead or pierhead line.
16.08.760 Construction permit—Required.
16.08.770 Construction permit—Application.
16.08.780 Construction permit—Homeowner's association.
16.08.790 Dangerous wharves or piers.
16.08.800 Removal of debris.

Article VI Mooring Areas

16.08.810 Authorized area, manner required.
16.08.820 Nonliability of City.
16.08.830 Wrecked or sunken vessels.
16.08.840 Temporary use of mooring of another.

Article VII Mooring Permits and Fees

16.08.850 Seawall permit and fees.
16.08.860 Shore mooring permit and fees.
16.08.870 Cancellation of permit.
16.08.880 Transfer.
16.08.890 Shore mooring waiting list administrative fee.

Article VIII. Marina Slip Permits and Fees

16.08.900 Required.
16.08.910 Reserved.
16.08.920 Commercial vessels.
16.08.930 Visiting vessels.
16.08.940 Small boat storage rack.
16.08.950 Temporary use by another vessel.
16.08.960 Temporary reassignment.

Article IX. Miscellaneous Provisions

16.08.970 Regulations establishment.

16.08.980 Fees payable in advance.
16.08.985 Penalty.
16.08.990 Refunds.

Chapter 16.12 Pacific Ocean Areas

Article I. Definitions

16.12.010 Generally.
16.12.020 Bureau.
16.12.030 City Manager.
16.12.040 Claremont Avenue launching ramp.
16.12.050 Director.
16.12.060 Golden Shore Marine Biological Reserve and Catalina Landing.
16.12.061 South Shore small boat launching ramp.
16.12.070 Mouth of the Los Angeles River.
16.12.080 Nearshore ocean area.
16.12.090 Person.
16.12.100 Protected ocean swimming area.
16.12.110 Vessel.

Article II. Nearshore Ocean Areas

16.12.120 Vessels restricted from swimming area.
16.12.130 Launch from or landing on beach.
16.12.131 Launch from or landing on the shores or rocks in the San Gabriel River.
16.12.140 Water skiing and aquaplaning.
16.12.150 Racing events.
16.12.151 Speed limit.
16.12.152 Restricted area.
16.12.160 Mooring or anchoring—Nearshore ocean area.
16.12.161 Temporary mooring.
16.12.162 Temporary mooring areas.
16.12.170 Mooring or anchoring—Pacific Ocean.
16.12.180 Swimming and diving.
16.12.190 Surfboards or paddleboards.
16.12.200 Climbing on lifeguard stations and/or towers.
16.12.210 Dangerous objects.
16.12.220 False distress calls.
16.12.230 Defacing public property.
16.12.240 Unseaworthy vessels.
16.12.250 Aircraft.

16.12.260 Sanitation.

16.12.265 Penalty.

Article III. South Shore Small Boat Launch Ramp, Golden Shore Marine Biological Reserve and Catalina Landing

16.12.270 Parking lot areas.

16.12.280 Prohibited Acts.

Article IV. Claremont Avenue Launching Ramp

16.12.290 Launching fees.

16.12.300 Prohibited acts.

Chapter 16.16 Parks and Beaches

16.16.010 Prohibited acts.

16.16.015 Designated skatepark.

16.16.017 Non-motorized recreational apparatus with wheels in designated skateparks.

16.16.020 Picnic permits.

16.16.030 Climbing over bluff or cliff.

16.16.040 Sand removal.

16.16.050 Nudity.

16.16.060 Sale or solicitation permit.

16.16.070 Hang gliding.

16.16.080 Park rangers.

16.16.090 Glass on beaches and bicycle paths.

16.16.100 Prohibition against overnight parking in Shoreline Park.

16.16.110 Restrictions on use of park above main library.

16.16.120 El Dorado Park West—Acts prohibited.

16.16.130 Biological reserve—Acts prohibited.

16.16.140 Park Playgrounds—Adults not accompanying children ages 12 and under prohibited.

Chapter 16.20 El Dorado Park East

16.20.010 Definitions.

16.20.020 Entry fee authorized.

16.20.030 Payment of fee required.

16.20.040 Exemptions.

16.20.050 Special regulations—Prohibition against parking except in designated areas.

16.20.060 Special regulations—Prohibition against vehicles of excessive length.

16.20.070 Special regulations—Prohibitions against parking on grass areas.

16.20.080 Special regulations—One-way streets.

16.20.090 Penalty.

Chapter 16.22 El Dorado East Nature Center

16.22.010 Fishing prohibited.
16.22.020 Penalty.

Chapter 16.24 Park Clubhouse

16.24.010 Definitions.
16.24.020 Supervision.
16.24.030 Permit—Required.
16.24.040 Services performed by City.
16.24.050 Permit—Fee—Designated.
16.24.060 Afternoon and evening periods designated.
16.24.070 Permit—Fee—Exemption.
16.24.080 Permit—Cancellation.
16.24.090 Use regulations.

Chapter 16.28 Municipal Golf Courses

16.28.010 Definitions.
16.28.020 Fees.
16.28.030 Fee exemptions authorized.
16.28.040 Rules authority.
16.28.050 Rules compliance required.
16.28.060 Reservations—Registration card.
16.28.070 Reservations—Procedure.
16.28.080 Reservations—Reassignment.
16.28.090 Golf Starter Ranger authority.

Chapter 16.32 Long Beach Convention Center

16.32.010 Purpose.
16.32.020 Definitions.
16.32.030 Manager's duties.
16.32.040 Permit—Required.
16.32.050 Permit—Application.
16.32.060 Rules and regulations.

Chapter 16.36 Veterans' Memorial Building

16.36.010 Definitions.
16.36.020 Advisory Commission.
16.36.030 Use regulations.
16.36.040 Rental fees.

16.36.050 Exemption from charges.

Chapter 16.40 Municipal Market

16.40.010 Definitions.
16.40.020 Hours.
16.40.030 Director of Public Service duties.
16.40.040 Spaces—Establishment.
16.40.050 Spaces—Use required.
16.40.060 Spaces—Allotment.
16.40.070 Spaces—Forfeiture.
16.40.080 Number of helpers.
16.40.090 Sale to other vendors prohibited.
16.40.100 Sanitation.
16.40.110 Scales and measures.
16.40.120 Protection from contamination.
16.40.130 Height above street.
16.40.140 Distributing advertising or handbills.
16.40.150 Fixing prices.
16.40.160 Price signs.
16.40.170 Restocking.
16.40.180 Hawking prohibited.
16.40.190 Sanitation and cleanup.
16.40.200 Sales after hours prohibited.
16.40.210 Commodities authorized for sale.
16.40.220 License tax payment required.
16.40.230 Sale of unauthorized commodities prohibited.
16.40.240 Permit—Required.
16.40.250 Permit—Issuance.

Chapter 16.43 Airport Noise Compatibility

16.43.010 Definitions.
16.43.020 Scope of permission to use the Airport.
16.43.030 Prohibited activities.
16.43.040 Maximum SENEL limits.
16.43.050 Cumulative noise limits and noise budgets.
16.43.060 Compliance with noise budgets.
16.43.070 General exemptions.
16.43.080 Presumptions for violation responsibility.
16.43.090 Violation enforcement.

16.43.100 Alternative enforcement procedures.
16.43.110 Administrative hearings and appeals.
16.43.120 Changes in methods of monitoring noise or calculating noise impacts.

Chapter 16.44 Airport

16.44.010 Definitions.
16.44.020 Location.
16.44.030 Director duties.
16.44.040 Commercial use permit—Required.
16.44.041 Ground transportation services.
16.44.050 Field rules.
16.44.060 Parking outside designated areas prohibited.
16.44.070 Flying rules.
16.44.080 Light signals.
16.44.090 Rates and fees.
16.44.100 Commercial use permit—Contents.
16.44.110 Fuel dispensing permit—Required.
16.44.120 Fuel dispensing permit—Contents.
16.44.130 Administrative regulations.
16.44.140 Special aviation fund.
16.44.150 Authorized helicopter operations.
16.44.151 Authorized helicopter facilities.
16.44.152 Helicopter facility permits.
16.44.153 Development standards.

Chapter 16.47 Off-Airport Car Rentals

16.47.010 Off Airport car rental access.
16.47.020 Term of permits.
16.47.030 Application.
16.47.040 Limitations of permit.
16.47.050 Prohibition of activities on Airport property.
16.47.060 Revocation of permit.
16.47.070 Processing fees.

Chapter 16.48 Cemetery

16.48.010 Name.
16.48.020 Operation regulations.
16.48.030 Official map.
16.48.040 Use of lots restricted.

16.48.050 Burials and removals.
16.48.060 Fees.
16.48.070 Single grave allotment and indigent burials.
16.48.080 Prohibited acts.

Chapter 16.52 Historic Landmarks

16.52.010 Jergins Trust Building, Pacific Coast Club, Villa Riviera, First Congregational Church, Rancho Los Alamitos and Rancho Los Cerritos.
16.52.020 Cooper Arms Apartments.
16.52.030 Drake Park/Willmore City Historic Landmark District.
16.52.040 Long Beach Community Hospital.
16.52.050 Scottish Rite Cathedral.
16.52.060 Insurance Exchange Building.
16.52.070 Recreation Park golf course clubhouse.
16.52.080 The Bembridge House.
16.52.090 Cherry Avenue Lifeguard Station.
16.52.100 William Benjamin Dearborn Simmons Tracker Pipe Organ.
16.52.110 Dr. Rowan Building.
16.52.120 Long Beach Municipal Auditorium Mural.
16.52.130 Heartwell/Lowe House.
16.52.140 St. Regis Building.
16.52.150 Fire Maintenance Station No. 10.
16.52.160 Leonie Pray House.
16.52.170 The Skinny House.
16.52.180 First National Bank of Long Beach Building.
16.52.190 Henry Clock House.
16.52.200 The Artaban Apartments.
16.52.210 The Broadlind Hotel.
16.52.220 The Masonic Temple.
16.52.230 The Matlock House.
16.52.240 The Moore House.
16.52.250 The Olan Hafley House.
16.52.260 The Willmore Building.
16.52.270 The Lafayette Complex.
16.52.280 The Linden House.
16.52.290 The Termo Company Building.
16.52.300 The Home Market Building.
16.52.310 The Farmers and Merchants Bank Office Tower.
16.52.320 The Long Beach Professional Building.

16.52.330 Bixby Ranch House.
16.52.340 The Houser Building.
16.52.350 The Harriman-Jones Clinic.
16.52.360 The Breakers Hotel.
16.52.370 The Ocean Center Building.
16.52.380 The Adelaide M. Tichenor House.
16.52.390 The Californian Apartments.
16.52.400 The Crest Apartments.
16.52.410 The Blackstone Hotel
16.52.420 The Sovereign Apartments.
16.52.430 Windham House (The Lord Mayor's Inn).
16.52.440 The Atlantic Studio.
16.52.450 The Barker Brothers Building.
16.52.460 The Buffums Autoport.
16.52.470 The Security Pacific National Bank Building.
16.52.480 The American Hotel.
16.52.490 The 312-316 Elm Avenue Commercial Building.
16.52.500 First United Presbyterian Church.
16.52.510 Walkers Department Store.
16.52.520 The Engine Company No. 8 Building.
16.52.530 The Golden House.
16.52.540 The Masonic Temple.
16.52.550 The Pacific Tower.
16.52.560 St. Anthony's Church.
16.52.570 St. Luke's Episcopal Church.
16.52.580 The First Church of Christ Scientist.
16.52.590 The Thrifty Drug/Famous Department Store.
16.52.600 453 Cedar Avenue.
16.52.610 629 Atlantic Avenue.
16.52.620 The Second Church of Christ Scientist.
16.52.630 The First Methodist Episcopal Church/Christian Outreach Appeal Building.
16.52.640 The Long Beach Airport Terminal.
16.52.650 The Long Beach Museum of Art.
16.52.660 The Harnett House.
16.52.670 240 Long Beach Boulevard.
16.52.680 320 East Bixby Road.
16.52.690 The Hancock Motors Building.
16.52.700 The Cheney-Delaney Residence.
16.52.710 The James E. Porter Residence.

16.52.720 The Meeker Building.
16.52.730 278 Alamitos Avenue (skating rink).
16.52.740 The Recreation Park bandshell.
16.52.750 The Coffee Pot Cafe.
16.52.760 The Chancellor Apartments.
16.52.770 The Kress Building.
16.52.780 The Gaytonia Apartment Building.
16.52.790 The Masonic Hall Commercial Building.
16.52.800 The Art Theater Building.
16.52.810 The Ambassador Apartment Building.
16.52.830 The Merrill Building.
16.52.840 The Flossie Lewis House.
16.52.860 The Pressburg Residence.
16.52.870 The El Cordova/Rose Towers.
16.52.890 The Bank of Belmont Shore.
16.52.900 Castle Croydon.
16.52.910 The Ernest and Lillian McBride Home.
16.52.920 The Dolly Varden Hotel Rooftop Sign.
16.52.930 The Le Grande Apartments.
16.52.940 The Silver Bow Apartments.
16.52.950 Casa Aitken.
16.52.960 St. John's Missionary Baptist Church.
16.52.970 The James Beer Residence.
16.52.980 The Garvey House.
16.52.990 The Bay Hotel.
16.52.1000 The Ringheim/Wells House.
16.52.1010 The Kale House and attached Music Art Hall.
16.52.1020 The Foster & Kleiser Building.
16.52.1030 The Anna R. Brown Residence.
16.52.1040 The Butler Residence.
16.52.1050 The Long Beach Unity Church.
16.52.1060 The Packard Motors Building.
16.52.1070 The American Legion Post #560 (Houghton Post).
16.52.1080 The Phillips House.
16.52.1090 The 1163 Appleton House.
16.52.2000 The 1169-75 Appleton Street House.
16.52.2010 The Parsonage.
16.52.2020 The Esser House.
16.52.2030 Sunnyside Cemetery.

16.52.2040 The Kelly House.
16.52.2050 The Alford House.
16.52.2060 The Cannon House.
16.52.2070 Seashell House.
16.52.2080 Crandell/Howard House.
16.52.2090 Kimpson/Nixon House.
16.52.2100 Killingsworth Office Building.
16.52.2110 Opdahl House.
16.52.2120 Annie Kinner House.
16.52.2130 Ebell Club.
16.52.2140 Ebell Theater.
16.52.2150 Tolbert House.
16.52.2160 George's 50's Diner.
16.52.2170 Delker House.
16.52.2180 Espey/Lochridge House.
16.52.2190 Palace Hotel.
16.52.2200 Alamitos Neighborhood Library.
16.52.2210 260 East San Antonio Drive.
16.52.2220 6509 Gundry Avenue.
16.52.2230 501 East Broadway.
16.52.2240 909-915 Elm Avenue.
16.52.2250 287 Granada Avenue.
16.52.2260 355 Junipero Avenue.
16.52.2270 362 Junipero Avenue.
16.52.2280 The Fly DC Jets Sign.
16.52.2290 The VIP Records Sign.
16.52.2300 Grant Neighborhood Historic Landmark District.
16.52.2310 Ferguson House.
16.52.2320 Alexander House.
16.52.2330 Petersen House.
16.52.2340 Bowyer Residence.
16.52.2350 Charles A. Buffum House.
16.52.2360 W.L. Porterfield Duplex.
16.52.2370 The Brady House.
16.52.2380 The Miner Smith Bungalow Mansion (1921).
16.52.2390 The Miner Smith Bungalow Mansion (1920).
16.52.2400 Berg Office Building.
16.52.2410 F.W. Rehbock House.
16.52.2420 Mr. and Mrs. Maury Frank House.

16.52.2430 Mcmullen House.
16.52.2440 Royal Hotel Building.
16.52.2450 Craig House.
16.52.2460 Lily Fremont House.
16.52.2470 Lovett O'Brien House.
16.52.2480 Powell House.
16.52.2490 Bratsalis House.
16.52.2500 Former Fire Station No. 9.
16.52.2510 Frank House.
16.52.2520 Dr. Paul and Dorothy Harstein House.
16.52.2530 20th Century House.
16.52.2540 The Press-Telegram Model Home.

Chapter 16.54 Shoreline Park Recreational Vehicle Area

16.54.010 Purpose.
16.54.020 Definitions.
16.54.030 Manager's duties.
16.54.040 Permit required.
16.54.050 Alcoholic beverages.
16.54.060 Rules and regulations.

Chapter 16.55 Advertising on Public Property and Facilities

16.55.010 Definitions.
16.55.020 Advertising/recognition agreements.
16.55.030 Restrictions.

Chapter 16.58 Labor Peace Agreements for the Airport and the Long Beach Convention Center

16.58.010 Purpose and intent.
16.58.020 Definitions.
16.58.030 No-Strike Pledge requirement for Concession Operations.
16.58.040 Posting requirements.
16.58.050 Limitations.
16.58.060 Severability.

Chapter 16.59 Worker Retention at the Airport and the Long Beach Convention Center

16.59.010 Findings and purpose.
16.59.020 Definitions.
16.59.030 Worker retention.
16.59.040 Posting and recordkeeping requirement.

16.59.050 Waiver.
16.59.060 Retaliation.
16.59.070 Enforcement.
16.59.080 Severability.

Chapter 16.60 Payment of Living Wage to Workers at the Long Beach Airport, Convention Center, and Temporary Amphitheater

16.60.010 Purpose.
16.60.020 Definitions.
16.60.030 Concessionaires subject to the requirements of this Chapter.
16.60.040 Payment of minimum compensation.
16.60.050 Required contract provisions.
16.60.060 Posting requirements.
16.60.070 Waiver.
16.60.080 Retaliation.
16.60.090 Enforcement.
16.60.100 Severability.

CHAPTER 16.04 PIERS*

16.04.010 Definitions.

The words and phrases defined in this Section, whenever used in this Chapter, shall have the meanings indicated unless the context requires a different meaning:

A. "Bureau" means the Marine Bureau, a division of the tidelands agency of the City.

B. "City Manager" means the City Manager of the City of Long Beach.

C. "Director" means the Manager of a Marine Bureau.

D. "Person" means and includes any individual, partnership, corporation, organization, association, federal, State, and local governmental entity or political subdivision or agency thereof.

E. "Vessel" means and includes ships of all kind regardless of the manner of propulsion and every structure designed to be, adapted to be, or capable of being navigated or operated on water from place to place for the transportation of merchandise, persons, or for any other purpose. (ORD-24-0002 § 15, 2024; Ord. C-5625 § 2 (part), 1980: prior code § 7210)

16.04.020 Piers and bridges—Diving prohibited.

Except for employees of the City in the performance of official duty, no person shall dive or plunge into, or otherwise enter, the water from any bridge or pier. (ORD-24-0002 § 15, 2024; Ord. C-5625 § 2 (part), 1980: prior code § 7210.1)

16.04.030 Fishing lines—Methods of casting.

A. No person shall cast, throw, or otherwise cause to be propelled any fishing line from any municipal wharf or dock or pier in either an overhead cast or side cast.

B. The City Manager is authorized to place and maintain, or cause to be placed and maintained, signs giving notice of the contents of this Section and the penalties prescribed for violation thereof. (ORD-24-0002 § 15, 2024; ORD-07-0022 § 1, 2007; Ord. C-5625 § 2, 1980: prior code § 7210.2)

16.04.040 Belmont Veterans' Memorial Pier—Prohibited acts.

No person shall do any of the acts enumerated in this Section on the Thirty-Ninth Place Pier, also known as Belmont Veterans' Memorial Pier.

A. Ride, drive, operate or park any motorcycle, automobile, or other motorized vehicle on Belmont Veterans' Memorial Pier without a written permit to do so from the Director. The Director shall issue permits only for vehicles used in lease and concession servicing, for tramcar service, for the transportation of disabled or infirm pier patrons, for any vehicle necessary for the operation and maintenance of the pier, and for use in special events;

B. Operate, drive, or cause to be propelled any bicycle, nonmotorized scooter or "skateboard" (as defined in Section 10.54.010) upon Belmont Veterans' Memorial Pier beyond the midpoint of the pier, as defined by the widened section of the pier approximately at the midpoint. Past the midpoint, a bicycle may be walked and a skateboard may be carried;

C. Rollerskate on Belmont Veterans' Memorial Pier beyond the midpoint of the pier. To "rollerskate" is the activity for propelling oneself by human power or by force of gravity on a device worn upon the feet or shoes having wheels attached thereto;

D. Peddle, sell, or offer for sale any goods on Belmont Veterans' Memorial Pier or on any of the approaches thereto, except from booths or storerooms constructed thereon for such purposes, or as permitted by Chapter 5.73;

E. Write or mark upon, deface, break, destroy, demolish, or otherwise injure Belmont Veterans' Memorial Pier or any of the buildings, structures, posts, standards, seats, tables, or other equipment or things constructed or placed thereon;

F. Break, destroy, demolish, deface, or in any manner tamper with any electric bulbs, light globes, light posts, light standards, lights, wiring, switch-

*Cross reference—For provisions on the Harbor Department, see the City Charter.

boards, switches, or other things constructed or used in connection with the lighting of Belmont Veterans' Memorial Pier;

G. Except pursuant to the terms and conditions of a permit issued by the City Council, moor, dock, or make fast any vessel to the boat launching structure at Belmont Veterans' Memorial Pier without having a person in attendance at all times at or on the vessel qualified to operate it. The person shall move the vessel immediately in the event of any emergency requiring the use of the landing or at any time upon the direction of the Director to do so. Any vessel moored or docked or made fast to the landing and which is left unattended shall be subject to removal to such other place as may be ordered by the Director at the expense of the vessel, its agent and owner;

H. Lead or turn loose any animal;

I. Fish, or store fishing-related gear or personal belongings, in any area of the Belmont Veterans' Memorial Pier except as identified as a "Fishing Area" on the Belmont Veterans' Memorial Pier;

J. Actively utilize more than three (3) fishing poles/lines at any time;

K. Cut bait or clean fish except in an appropriate fish cleaning station;

L. Jump or dive from the Belmont Veterans' Memorial Pier, except as part of a class supervised by the Long Beach Fire Department Safety Division;

M. Consume alcohol except in areas designated by the City as part of a restaurant/snack facility or permitted special event;

N. Take mussels from the pilings of Belmont Veterans' Memorial Pier. (ORD-24-0002 § 15, 2024; ORD-07-0022 § 2, 2007; Ord. C-7848 § 1, 2003: Ord. C-7043 § 3, 1993; Ord. C-5625 § 2 (part), 1980: prior code § 7210.3)

16.04.050 Belmont Veterans' Memorial Pier—Hours open to public.

Belmont Veterans' Memorial Pier shall be open daily to the public between one (1) hour before sunrise and twelve o'clock (12:00) midnight. (ORD-24-0002 § 15, 2024; Ord. C-7211 § 2, 1994: Ord. C-7118 § 2, 1993: Ord. C-5656 § 1, 1980: Ord. C-5625 § 2 (part), 1980: prior code § 7210.4)

16.04.060 Belmont Veterans' Memorial Pier—Rules and regulations.

The City Manager, with the approval of the City Council, may adopt, amend, or repeal additional rules and regulations for the use and occupancy of Belmont Veterans' Memorial Pier. The Director shall enforce the provisions of this Chapter and such rules and regulations as may hereafter be approved by the City Council. (ORD-24-0002 § 15, 2024; Ord. C-5625 § 2 (part), 1980: prior code § 7210.5)

16.04.070 Fish nets - prohibited.

No person shall set, draw or use any fishing net or seine, except a dip net not exceeding eight feet (8') square, in the Pacific Ocean less than one thousand feet (1,000') from any wharf, dock or pier. (ORD-24-0002 § 15, 2024; Prior code § 4613)

16.04.080 Fish nets - restrictions.

No person shall set, draw or use any fishing net or seine, except a dip net not exceeding eight feet (8') square, in the Pacific Ocean at any point or place within the City less than one thousand feet (1,000') from any wharf, dock or pier located in the City. (ORD-24-0002 § 15, 2024; Prior code § 4613.1)

16.04.090 College Park Drive - acts prohibited.

No person shall engage in the act of fishing in any manner from the bridge on College Park Drive. (ORD-24-0002 § 15, 2024; Ord. C-6468 § 1, 1988)

16.04.100 Acts prohibited on embankments of San Gabriel River.

A. No person shall fish, swim, or climb on the embankments of the San Gabriel River within the limits of the City.

B. The City Manager or his designee is authorized to place and maintain signs giving notice of

the contents of this Section and the penalties for violation hereof. (ORD-24-0002 § 15, 2024; Ord. C-6884 § 1, 1991)

CHAPTER 16.08 MARINAS

ARTICLE I. DEFINITIONS

16.08.010 Generally.

The words and phrases defined in Sections 16.08.020 through 16.08.290, whenever used in

this Chapter, shall have the meanings indicated unless the context requires a different meaning. (Ord. C-5625 § 4 (part), 1980: prior code § 7220 (part))

16.08.020 Alamitos Bay.

"Alamitos Bay" means all that portion of the Long Beach Marina Area located southerly and southwesterly of the Marina Basins, the Marine Stadium East, the Marine Stadium West, and includes the Naples Canal, which is defined as that portion of the Alamitos Bay located southerly and southeasterly of Sienna Drive, westerly and northwesterly of Via Di Roma Walk, southeasterly of Second Street, and northerly of the Corso Di Napoli and its prolongations easterly and westerly. (Ord. C-5625 § 4 (part), 1980: prior code § 7220(f))

16.08.021 Alamitos Bay Marina Long Dock North.

"Alamitos Bay Marina Long Dock North" means that dock located at a point approximately eighty feet (80′) west of the building known as 190 North Marina Drive in the Alamitos Bay entry channel, and running in a north south direction for a distance of approximately three hundred ninety feet (390′). (ORD-08-0014 § 18, 2008)

16.08.022 Alamitos Bay Marina Long Dock South.

"Alamitos Bay Marina Long Dock South" means that dock located in the Alamitos Bay entry channel, at a point approximately eighty feet (80′) west of the building known as 110 North Marina Drive, and running in a north south direction for a distance of approximately three hundred fifty-five feet (355′). (ORD-08-0014 § 19, 2008)

16.08.023 Alamitos Bay Marina Slip 3-2.

"Alamitos Bay Marina Slip 3-2" means that first forty-five foot (45') slip located northeasterly of Gangway 3, at a point approximately twenty feet (20') north of the building known as 215 North Marina Drive, in Alamitos Bay Marina. (ORD-22-0020 § 1, 2022; ORD-08-0014 § 20, 2008)

16.08.024 Reserved.

Editor's note—ORD-22-0020, § 13, adopted Aug. 2, 2022, repealed § 16.08.024 entitled "Alamitos Bay Marina Slip 585," which derived from ORD-08-0014 § 21, 2008.

16.08.025 Alamitos Marina Slip 13-2.

"Alamitos Bay Marina Slip 13-2" means that first thirty foot (30') slip located northeasterly of Gangway 13, at a point approximately eighty feet (80') west of the building known as 241 North Marina Drive, in Alamitos Bay Marina. (ORD-22-0020 § 2, 2022; ORD-08-0014 § 22, 2008)

16.08.026 Alamitos Marina Slip 14-1.

"Alamitos Bay Marina Slip 14-1" means that first thirty foot (30') slip located northwesterly of Gangway 14, at a point approximately sixty feet (60') west of the building known as 241 North Marina Drive, in Alamitos Bay Marina. (ORD-22-0020 § 3, 2022; ORD-08-0014 § 23, 2008)

16.08.030 Auxiliary.

"Auxiliary" means any vessel which may be propelled by sails or by means of an inboard or outboard engine. While under sail only, an auxiliary shall be subject to rules governing sailing craft. While under power, either with or without sails, an auxiliary shall be subject to the rules governing motorboats. (Ord. C-5625 § 4 (part), 1980: prior code § 7220(u))

16.08.040 Bureau.

"Bureau" means the Marine Bureau, a division of the tidelands agency of the City. (Ord. C-5625 § 4 (part), 1980: prior code § 7220(i))

16.08.050 Channels and turning basins.

"Channels" and "turning basins" mean all channels and turning basins within the marinas (as defined in Section 16.08.150) which have been designated by the federal government, or in the absence of such designation, by the Director with the approval of the City Manager, as shown on maps on file in the office of the Director. (Ord. C-5625 § 4 (part), 1980: prior code § 7220(o))

16.08.060 City Manager.

"City Manager" means the City Manager of the City of Long Beach. (Ord. C-5625 § 4 (part), 1980: prior code § 7220(k))

16.08.070 Director.

"Director" means the Manager of the Marine Bureau. (Ord. C-5625 § 4 (part), 1980: prior code § 7220(j))

16.08.080 Dock.

"Dock" means a waterway extending between two (2) piers for the reception of ships, a landing pier for boats. (Ord. C-5625 § 4 (part), 1980: prior code § 7220(y))

16.08.081 Docking.

"Docking" means to make fast or tie any vessel to any wharf, pier, mooring, gangway or floating dock structure. (Ord. C-7043 § 7 (part), 1992)

16.08.090 Shoreline Marina.

"Shoreline Marina" means those portions of the tidelands area bounded as follows:

Beginning at the intersection of Shoreline Drive and Linden Avenue; thence southeast along the centerline extension of Linden Avenue to the intersection of a line parallel with and two hundred twenty feet (220′) northwesterly from the shoreline enrockment reference line to be known as the point of beginning; thence southwesterly along last said line to the intersection of a line parallel with and two hundred eighty-five feet (285′) easterly of the Rainbow Marina Concrete Bulkhead; thence southerly along last said line to the intersection of a line parallel with and eighty feet (80′) northerly from the shoreline enrockment reference line; thence southwesterly along last said line to the intersection of the northerly projection of the west enrockment reference line of the Shoreline Marina Mole; thence southeasterly along last said line; thence northeasterly along the mole southeasterly enrockment reference line to the most easterly point of the Marina Mole; thence northeast to the most westerly point of Oil Island Grissom; thence northeasterly along the northwest portion of Oil Island Grissom to the most northerly point in Oil Island Grissom; thence northeast to the intersection of the east enrockment reference line and the most southerly point of the Shoreline Marina East Jetty; thence northwest along said Jetty east enrockment reference line to the intersection of a line parallel with and two hundred twenty feet (220′) northwesterly from the shoreline enrockment reference line; thence southwesterly along last said line to the point of beginning. (ORD-08-0014 § 1, 2008: Ord. C-5625 § 4 (part), 1980: prior code § 7220(g))

16.08.100 Float.

"Float" means and includes any wharf, pier, quay, or landing. (Ord. C-5625 § 4 (part), 1980: prior code § 7220(q))

16.08.101 Harbormaster's Dock—Alamitos Bay Marina.

"Harbormaster's Dock" means that one hundred forty-eight foot (148′) dock which runs along the northwesterly side of the Harbor Master Building located at 205 North Marina Drive in the Alamitos Bay Marina area. (ORD-08-0014 § 24, 2008)

16.08.110 Long Beach Marina Area.

"Long Beach Marina Area" means all waters and public lands bordering such waters in the southeastern portion of the City within the following described boundaries:

Beginning at the intersection of the centerline of Nieto Avenue with the centerline of Colorado Street; thence easterly along last said centerline to the easterly line of Marina Drive; thence southerly and southeasterly along last said line to the northwesterly shoreline of the Los Cerritos Channel; thence northeasterly and northerly along last said shoreline to the southerly line of Anaheim Road; thence easterly along last said line to the easterly shoreline of Los Cerritos Channel; thence southerly and southwesterly along last said shoreline to the northeasterly line of Marina Pacifica Channel; thence southeasterly along last said channel to the most southeasterly part of the Marina Pacifica

Channel; thence southeasterly along a line to a point that intersects at the northwesterly line of Second Street and the northwesterly prolongation of the northeasterly line of that portion of Marina Drive lying southerly of Second Street; thence southeasterly along last said line and the prolongations thereof, to the westerly right-of-way line of the San Gabriel River flood control channel; thence southwesterly along last said line to the southeasterly boundary of the City of Long Beach in the common boundary between the county of Los Angeles and the county of Orange; thence southwesterly along last said line to a line at right angles to and passing through the southerly terminus of the westerly jetty of the Alamitos Bay entrance channel; thence northwesterly along last said line to said terminus, thence northerly along the centerline of said westerly jetty to the southeasterly prolongation of the centerline of Ocean Boulevard; thence northwesterly along said prolongation and said centerline of Ocean Boulevard to the centerline of Sixty-ninth Place; thence northeasterly along last said centerline to the northeasterly line of Bay Shore Walk; thence northwesterly along last said line to the centerline of Fifty-fifth Place; thence southwesterly along last said centerline to the centerline of Ocean Boulevard: thence northwesterly along last said centerline to the centerline of Fifty-fourth Place; thence northeasterly and northwesterly along last said centerline to the centerline of Bay Shore Avenue; thence northeasterly and easterly along last said centerline to the centerline of Appian Way; thence southeasterly along last said centerline to the Bay Shore bulkhead line; thence northeasterly along last said bulkhead line to a line 200 feet northeasterly from and parallel with the centerline of Appian Way; thence northwesterly along last said line and the northwesterly prolongation thereof, to the centerline of Nieto Avenue; thence northerly along last said centerline to the point of beginning. (Ord. C-5625 § 4 (part), 1980: prior code § 7220(a))

16.08.120 Los Cerritos drainage channel.

"Los Cerritos drainage channel" means all that portion of Alamitos Bay, and tributaries connected thereto, located northeasterly of the northeasterly line of Marina Drive, and is also known as Los Cerritos Ditch. (Ord. C-5625 § 4 (part), 1980: prior code § 7220(e))

16.08.121 Marina Pacifica Channel and Basins.

"Marina Pacifica Channel and Basins" means that portion of Alamitos Bay, extending southeasterly from the Los Cerritos Drainage Channel, located northeasterly of the northeasterly line of Marina Drive and southwesterly of Pacific Coast Highway. (Ord. C-6667 § 2, 1989)

16.08.122 Spinnaker Cove Channel and Basins.

"Spinnaker Cove Channel and Basins" means that portion of Alamitos Bay, extending northwesterly from the Los Cerritos Drainage Channel, located northeasterly of the northeasterly line of Marina Drive and southwesterly of Pacific Coast Highway. (Ord. C-6667 § 3, 1989)

16.08.130 Marina Basins.

"Marina Basins" means those portions of the Long Beach Marina Area designated as Marina Basins 1, 2, 3, 4, 5, 6, 7, 8 and Naples Landing within the following described boundaries:

A. Beginning at the intersection of the northeasterly line of Marina Drive with a line parallel with and fifty feet (50′) northwesterly from the centerline of Second Street; thence southwesterly along last said line to the centerline of Appian Way; thence southeasterly and southerly along last said line to the centerline of Savona Walk; thence southwesterly along last said line to the southwesterly line of Appian Way Service Road; thence southeasterly along last said line, and the southeasterly prolongations thereof, to the Vista Del Golfo bulkhead line; thence southwesterly in a direct line approximately one thousand feet (1,000′) to the most westerly point on the shoreline of the southwesterly mole of Basin No. 1; thence southerly along said shoreline to the common southeasterly boundary of the Long Beach Marina Area and the City of Long Beach; thence

northeasterly and northwesterly along said boundary of the Long Beach Marina Area to the point of beginning;

B. Beginning at the intersection of the centerline of the westerly jetty of the Alamitos Bay Entrance Channel with the southeasterly prolongation of the centerline of Ocean Boulevard; thence northwesterly along said prolongation and the centerline of Ocean Boulevard, being the boundary of the Long Beach Marina Area, to the southeasterly prolongation of the vacated alley northeasterly of Block 18 of the Alamitos Bay Tract; thence northwesterly along said prolongation and centerline to the southwesterly prolongation of the northwesterly wall line of Basin No. 5; thence northeasterly along said prolongation and wall line to its northeasterly terminus; thence at right angles, southeasterly two hundred ten feet (210′), more or less, to the easterly wall line of Basin No. 5; thence southerly along said easterly wall line and easterly shoreline of the westerly jetty of the Alamitos Bay Entrance Channel to the southeasterly prolongation of the centerline of Ocean Boulevard; thence northeasterly along said prolongation to the point of beginning;

C. Beginning at the intersection of the northeast line of Marine Stadium West and the northwest line of Los Cerritos Channel; thence northeast along the northwest line of the Los Cerritos Channel to its intersection with the centerline of Pacific Coast Highway; thence southeast along said centerline of Pacific Coast Highway to its intersection with the southeast bulkhead line of the Los Cerritos Channel; thence southwest along said southeast bulkhead line of the Los Cerritos Channel and its prolongation across the Marina Pacifica Entrance Channel to its intersection with the northeast line of Marine Stadium West; thence northwesterly along said northeast line of Marine Stadium East to the point of beginning, which describes the Los Cerritos Channel area of Basin No. 6;

D. Beginning at the intersection of the southeast bulkhead line of the Los Cerritos Channel and the southwest bulkhead line of the Marina Pacifica Entrance Channel; thence southeast along said southwest Marina Pacifica bulkhead line to a ninety (90°) degree angle point in said bulkhead; thence southwest along said bulkhead line to a bulkhead angle point, said bulkhead angle point being the most westerly point of the Marina Pacifica Entrance Channel; thence southeast along the bulkhead line to the intersection of the line, measured at right angle, fifty feet (50′) from the bulkhead line of the Marina Pacifica Entrance Channel; thence northeast along a line parallel to and fifty feet (50′) out from, measured at right angles, the northwest bulkhead line of the Marina Pacifica Entrance Channel to an angle point; thence northwest along a line parallel to and fifty feet (50′) out from southwest bulkhead line of the Marina Pacifica Entrance Channel to the intersection of the projected southeast bulkhead line of the Los Cerritos Channel; thence southwest to the point of beginning, which describes the Marina Pacifica Entrance Channel portion of Basin No. 6;

E. Beginning at a point in the northeasterly line of Ocean Boulevard 91.30 feet northwesterly of the northwesterly line of 55th Place; thence north 57° 51′ West along said northeasterly line of Ocean Boulevard one hundred fifty feet (150′); thence North 32° 03′ East 68.50 feet; thence north 28° 30′ West 35.60 feet; thence North 32° 03′ East 144.00 feet; thence South 57° 57′ East 212.00 feet; thence South 32° 03′ West 144.00 feet; thence South 64° 43′ West 57.43 feet; thence South 32° 03′ West 37.65 feet to the point of beginning; and

F. Beginning at the most southerly southeasterly corner of Lot 202 of Tract No. 32277, as shown on a map recorded in Book 892, pages 80-88, inclusive of maps, in the office of the county recorder of said Los Angeles County; thence along the southerly line of said Lot 202, South 64° 04′ 40″ West 571.33 feet to the beginning of a curve concave northwesterly and having a radius of 700.00 feet; thence southwesterly 128.78 feet along said curve, through a central angle of 10° 32′ 28″ to the southwesterly corner of said Lot 202; thence continuing southeasterly 25.27 feet along said curve and southerly line of Lot 203 of said Tract No. 32277, through a central angle of 2° 04′ 07″ to the southwest corner of said Lot 203.

The northwesterly and southeasterly lines of said strip shall be lengthened or shortened so as to terminate northeasterly at the southwesterly line of Pacific Coast Highway and southwesterly at the southeasterly prolongation of a line that is radial to the southwest corner of said Lot 203, said radial line being "South 13° 18′ 45″ East". (ORD-08-0014 § 2, 2008: Ord. C-6047 § 1, 1984: Ord. C-5625 § 4 (part), 1980: prior code § 7220(b))

16.08.140 Marinas.

"Marinas" means the water areas and public lands and improvements thereon within the Marina Area, Alamitos Bay Marina, Shoreline Marina, the Rainbow Marina, and the Rainbow Harbor and any other marina owned, operated, or controlled by the City. (ORD-22-0020 § 4, 2022; ORD-08-0014 § 3, 2008: Ord. C-5625 § 4 (part), 1980: prior code § 7220(bb))

16.08.150 Marine Stadium East.

"Marine Stadium East" means that portion of the Long Beach Marina Area within the following described boundaries:

Beginning at the intersection of Bay Shore Avenue bulkhead line with a line 200 feet northeasterly from and parallel with the centerline of Appian Way; thence northeasterly at right angles to last said line to the northeasterly line of Marina Drive; thence southeasterly along last said line to a line parallel with and fifty feet (50') northwesterly from the centerline of Second Street; thence southwesterly along last said line to the centerline of Appian Way; thence northwesterly along the curved portion of Appian Way to a line parallel with and two hundred feet (200') northeasterly from the centerline of that portion of Appian Way between San Marco Drive and Bay Shore Avenue; thence northwesterly along last said line to the point of beginning. (Ord. C-5625 § 4 (part), 1980: prior code § 7220(c))

16.08.160 Marine Stadium West.

"Marine Stadium West" means all that portion of the Long Beach Marina Area located northwesterly of the northwesterly line of Marine Stadium East. (Ord. C-5625 § 4 (part), 1980: prior code § 7220(d))

16.08.170 Mooring.

"Mooring" means any weight, chain, rope, buoy, floating dock system, or any other structure or appliance used for the purpose of holding a vessel in place and which is not carried on board the vessel as regular equipment when under way. (Ord. C-5625 § 4 (part), 1980: prior code § 7220(p))

16.08.180 Mooring area or anchoring area.

"Mooring area" or "anchoring area" mean any portion of the Long Beach Marina Area and of the Pacific Ocean within the limits of the City which has been designated by the federal government, or in the absence of such designation, by the Director with the approval of the City Manager, for the mooring or anchoring of vessels. (Ord. C-5625 (part), 1980: prior code § 7220(n))

16.08.190 Motorboat.

"Motorboat" means any vessel whose normal means of propulsion is by internal combustion, electric, or mechanical engine, either inboard or outboard. (Ord. C-5625 § 4 (part), 1980: prior code § 7220(s))

16.08.200 Person.

"Person" means and includes any individual, partnership, corporation, organization, association, federal, State, and local governmental entity or political subdivision or agency thereof. (Ord. C-5625 § 4 (part), 1980: prior code § 7220(l))

16.08.210 Pier.

"Pier" means a structure built out into the water with piles for use as a landing place. (Ord. C-5625 § 4 (part), 1980: prior code § 7220 (w))

16.08.211 Pierpoint Landing Guest Dock.

"Pierpoint Landing Guest Dock" means the dock that connects Dock 1b and 1c in the Rainbow Harbor. (ORD-08-0014 § 25, 2008)

16.08.220 Quay.

"Quay" means a stretch of paved bank or solid artificial landing placed beside navigable water. (Ord. C-5625 § 4 (part), 1980: prior code § 7220(z))

16.08.221 Rainbow Marina.

"Rainbow Marina" means those portions of the tidelands area bounded as follows:

Beginning at the intersection of Shoreline Drive and Pine Avenue; thence southwest along the centerline extension of Pine Avenue to the intersection of the south curb of the most southerly line of Shoreline Drive service road to be known as the point of beginning; thence easterly of said curb and its extension to the intersection of a line parallel with and two hundred eighty-five feet (285′) easterly of the Rainbow Marina concrete bulkhead; thence southerly along last said line to the intersection of a line parallel with and eighty feet (80′) northerly from the shoreline enrockment reference line; thence southwesterly along last said line to the intersection of the northerly projection of the west enrockment reference line of the Shoreline Marina Mole; thence southeasterly along last said line to the shoreline enrockment reference line at its extension; thence northwesterly along last said line to the intersection of the west enrockment reference line of the entrance channel of the Rainbow Marina, thence northeasterly along last said line to its most northerly point; thence northwest to the point of beginning. (ORD-08-0014 § 26, 2008)

16.08.222 Rainbow Marina Dock 8.

"Dock 8" means that dock located at a point approximately twenty-five feet (25′) northwesterly of the building known as 401 Shoreline Drive, and running in a northwesterly direction for a distance of approximately one hundred ten feet (110′). (ORD-08-0014 § 27, 2008)

16.08.223 Rainbow Harbor.

"Rainbow Harbor" means those portions of the tidelands area bounded as follows:

Beginning at the intersection of the southerly line of Ocean Boulevard, one hundred feet (100′) wide, with the centerline of Pine Avenue (North), one hundred feet (100′) wide, and said intersection having the coordinates North 4,027,618.60 and East 4,229,816.61 of Zone 7 of the California Coordinate System, NAD 27, as shown on Drawing No. E212, on file in the office of the City Engineer of Long Beach; thence South 0° 05′ 28″ East 1,851.54 feet along said centerline and its southerly prolongation; thence East 602.31 feet to the most northerly corner of the Shoreline Village Lease Area as described in a legal description on file in the office of the City Engineer of Long Beach; thence South 82.71 feet along the lease line of said lease to a point, said point also being the intersection of the landward edges of the existing northerly and easterly concrete bulkheads, said point being the most northeasterly corner of the Rainbow Marina as described in a legal description on file in said office of the City Engineer; thence along the landward edge of the northerly bulkhead and the northeasterly line of said Rainbow Marina, North 68° 02′ 55″ West to the most northerly corner of said Rainbow Marina, said point being the true point of beginning of this description. Thence leaving said bulkhead line and along the westerly line of said Rainbow Marina, South 19° 20′ 58″ West 819.42; thence leaving said westerly line, South 83° 11′ 31″ West 420.31 feet to its intersection with the landward edge of the existing easterly concrete bulkhead line, said point being the beginning of a non-tangent curve concave westerly and having a radius of 180.00 feet; a radial line through said beginning of curve bears South 13° 53′ 29″ East; thence northeasterly, northerly and westerly 483.38 feet along said curve and bulkhead line through a central angle of 153° 51′ 54″; thence along the landward edge of the southerly, westerly and northerly concrete bulkhead lines through the following courses: North 83° 08′ 53″ West 698.32 feet to the beginning of a non-tangent curve concave southwesterly and having a radius of 81.67 feet; a radial line through said beginning of curve bears North 86° 04′ 14″ East; thence northwesterly and westerly 128.25 feet through a central angle of 89° 58′ 49″ to the beginning of a non-tangent curve concave southeasterly and hav-

ing a radius of 400.00 feet, a radial line through said beginning of curve bears South 69° 06′ 27″ West; thence northerly, northeasterly, easterly and southeasterly 1144.86 feet along said curve through a central angle of 163° 59′ 20″ to the beginning of a non-tangent curve concave northeasterly and having a radius of 81.67 feet, a radial line through said beginning of curve bears North 59° 34′ 22″ West; thence southerly and southeasterly 180.18 feet through a central angle of 126° 24′ 12″ to the beginning of a non-tangent curve concave northerly and having a radius of 284.51 feet; a radial line through said beginning of curve bears South 48° 45′ 50″ West; thence southeasterly, easterly and northeasterly 578.51 feet along said curve through a central angle of 116° 30′ 18″; thence North 22° 15′ 32″ East 28.21 feet to the beginning of a non-tangent curve concave southerly and having a radius of 220.60 feet, a radial line through said beginning of curve bears North 9° 14′ 24″ West; thence easterly 99.37 feet along said curve through a central angle of 25° 48′ 34″ to the beginning of a non-tangent curve concave northeasterly and having a radius of 40.00 feet, a radial line through said beginning of curve bears South 87° 13′ 25″ West; thence southeasterly, easterly and northeasterly 88.27 feet along said curve through a central angle of 126° 26′ 11″; thence South 70° 38′51″ East 53.27 feet to the true point of beginning. (ORD-08-0014 § 28, 2008)

16.08.230 Sailing craft.

"Sailing craft" means any vessel whose normal means of propulsion is by sail. (Ord. C-5625 § 4 (part), 1980: prior code § 7220(r))

16.08.240 Sand dolly.

"Sand dolly" means any movable cradle, structure, or device used for moving boats into or out of the water or for the storage of boats thereon. (Ord. C-5625 § 4 (part), 1980: prior code § 7220(t))

16.08.250 Shoreline.

"Shoreline" means the line of the tide at any given time. (Ord. C-5625 § 4 (part), 1980: prior code § 7220(aa))

16.08.261 Shoreline Aquatic Park.

"Shoreline Aquatic Park" means those water portions of the Tidelands area located within Shoreline Park. (ORD-08-0014 § 4, 2008: Ord. C-7043 § 7 (part), 1992)

16.08.263 Marina Park Long Dock.

"Marina Park Long Dock" means that long dock located approximately one hundred feet (100′) northwest of the northwest corner of the Marina Park Lifeguard Station in Marina Park. (ORD-08-0014 § 5, 2008: Ord. C-7043 § 7 (part), 1992)

16.08.264 Davies Long Dock.

"Davies Long Dock" means that six hundred foot (600′) long dock located approximately three hundred four feet (304′) north of the Davies Bridge on 2nd Street and eighteen feet (18′) west of the easterly shoreline of Marine Stadium East Launching Ramp (Davies Launch Ramp). (Ord. C-7043 § 7 (part), 1992)

16.08.265 Gangway A—Shoreline Marina.

"Gangway A at the Shoreline Marina" means that gangway, which runs northerly from the north side of the Harbor Master Building located at 450 Shoreline Drive in the Shoreline Marina area. (ORD-08-0014 § 6, 2008: Ord. C-7043 § 7 (part), 1992)

16.08.266 Dock 10.

"Dock 10" means that five hundred twelve foot (512′) dock located at a point approximately one hundred twenty-three feet (123′) west of the building known as 160 East Shoreline Drive and running in a westerly direction for one hundred sixty-one feet (161′) and southerly for three hundred fifty-one feet (351′). (ORD-16-0017 § 1, 2016; ORD-08-0014 § 7, 2008: Ord. C-7043 § 7 (part), 1992)

16.08.267 Alamitos Bay Pump-out Dock.

"Alamitos Bay Pump-out Dock" means that dock located at a point southwesterly approximately fifty-seven feet (57′) from the building known

as 223 Marina Drive and running in a northwesterly direction approximately twenty-five feet (25′) then one hundred feet (100′) in a northerly direction. (Ord. C-7043 § 7 (part), 1992)

16.08.268 Rainbow Harbor Esplanade.

"Rainbow Harbor Esplanade" means the walkways and all public area surrounding Rainbow Marina and Rainbow Harbor. (ORD-08-0014 § 29, 2008)

16.08.270 Slip.

"Slip" means a vessel's berth between two (2) piers. (Ord. C-5625 § 4 (part), 1980: prior code § 7220(v))

16.08.280 Vessel.

"Vessel" means and includes ships of all kind regardless of the manner of propulsion and every structure designed to be, adapted to be, or capable of being navigated or operated on water from place to place for the transportation of merchandise, persons, or for any other purpose. (Ord. C-5625 § 4 (part), 1980: prior code § 7220(m))

16.08.290 Wharf.

"Wharf" means any structure alongside which a vessel may lie. (Ord. C-5625 § 4 (part), 1980: prior code § 7220(x))

ARTICLE II. DIRECTOR OF THE MARINE BUREAU

16.08.300 Powers and duties.

The Director shall have the authority and it shall be his duty:

A. To supervise and administer all operations and activities of the Bureau;

B. To direct and control the berthing of vessels in the marinas; to assign moorings, berths, or landing places to vessels within designated areas within the marinas or any other water area under the City's jurisdiction; to determine the admissibility of vessels to the marinas dependent on type, condition, size, and availability of berthing space; to assign visiting vessels berthing space and specify the limit of stay for a period not to exceed fifteen (15) days of any month, except under emergency conditions;

C. To enforce the provisions of this Chapter, including all regulations adopted by the City Council in accordance with Section 16.08.970, Bureau policies, and other State and federal laws and ordinances of the City affecting the marinas or any other mooring area under the City's jurisdiction and the navigable waters within the limits of the City;

D. To order any vessel moored, docked, or berthed in the marinas or at a privately owned mooring, docking, or berthing facility which is under permit issued by the City, to change its position and in case his orders are not complied with, to cause the vessel to be so moved and to collect the cost thereof from the vessel or the owner thereof;

E. To report promptly to the proper authorities any violation of the laws of the United States for the protection of navigation and the preservation of navigable waters or any violation of State or local laws or ordinances; to so report any encroachment on the waterway by the building of illegal structures, illegal filling, or dumping of material of any sort into the waterway, or the throwing overboard or setting adrift or allowing to be set adrift anything that is or might become obstructive or dangerous to navigation or a menace to public health or safety;

F. The Director may keep a current record of the number, size, and kind of vessels using the navigable waters in the marinas and the number of passengers carried. The owners, masters, or persons in charge of any vessel using the waters are required to furnish the Director or his designee with any reasonable information requested, and to allow him upon demand to examine their papers, including their manifest;

G. To perform such other duties the City Manager may, from time to time, assign to the Director. (Ord. C-5625 § 4 (part), 1980: prior code § 7221)

16.08.310 Delegation of powers.

Whenever a power is granted to or a duty imposed upon the Director, the power may be

exercised by or the duty may be performed by the Harbor Master or any assistant, deputy, or employee of the Bureau designated by the City Manager for such purpose, unless expressly provided otherwise. (Ord. C-5625 § 4 (part), 1980: prior code § 7221.1)

16.08.320 Harbor Master.

In the absence of the appointment of a Harbor Master, the duties of the Harbor Master shall be performed by the Director or by any assistant, deputy or employee designated by the City Manager for such purpose. The Harbor Master, acting under the orders and supervision of the Director, shall have full authority in the enforcement of all provisions of this Chapter and regulations affecting the marinas, and all orders and instructions given by the Harbor Master in the performance of his duties shall have the same effect as if issued by the Director. (Ord. C-5625 § 4 (part), 1980: prior code § 7221.2)

16.08.330 Appeal from cancellation of permit.

In accordance with the provisions of Subsection 2.93.050.A, the City Council hereby designates the Marine Advisory Commission, established pursuant to Chapter 2.48, to conduct the hearing of the appeal of any cancellation of a permit issued pursuant to this Chapter. All of the applicable provisions of Chapter 2.93 (conduct of hearings) shall govern the conduct of the hearing and the processing of the appeal. (Ord. C-7101 § 1, 1993: Ord. C-6461 § 1, 1988: Ord. C-5625 § 4 (part), 1980: prior code § 7221.3)

16.08.340 Power to arrest and prepare and issue and deliver written notice to appear.

A. Those employees of the City holding the unclassified position of Manager of the Marine Bureau, Harbor Master, Superintendent of Marine Safety, and Superintendent of Marine Patrol and those employees of the City holding or temporarily performing the duties of the classified positions of Marine Safety Battalion Chief, Marine Safety Sergeant, Marine Safety Officer, Lifeguard, Marina Supervisor, Marina Agent I, Marina Agent II, Special Services Officer I, Special Services Officer II, Special Services Officer III, Special Services Officer IV and Security Officer III employed in the City shall have the duty of enforcing such laws, ordinances, rules and regulations as the City Council may direct by regulation enacted pursuant to Section 16.08.970 and such tariff items as the Board of Harbor Commissioners may direct pursuant to Port of Long Beach Tariff No. 4, or any revision or replacement thereof.

B. Those employees of the City holding or temporarily performing the duties of the classified noncareer positions of Special Services Officer I and Special Services Officer II shall have the duty of enforcing such laws and ordinances as the City Council may direct by regulation enacted pursuant to Section 16.08.970.

C. The employees referred to in Subsections A. and B. above are authorized, pursuant to California Penal Code Section 836.5, to arrest persons and to prepare, issue, and deliver to any such arrested person a written notice to appear in court and to release such person from custody upon receiving from such person his or her written promise to appear in court for any violation or violations of any section or sections designated by the City Council in regulations enacted pursuant to Section 16.08.970.

D. Nothing in this Section is intended to operate either in addition to or in contravention of Part 2, Title 3, Chapter 4.5, of the California Penal Code, which expressly designates those persons who are classified as peace officers. Further, nothing in this Section is intended to or shall operate to change or shall have the effect of changing the status of the officers and employees authorized to act pursuant to this Section from public or miscellaneous officers and employees to individual peace officers or safety members or classes of peace officers or safety members for purposes of retirement, worker's compensation or similar injury or death benefits or any other employee benefit or benefits to which said employee would not have been entitled as a public employee prior to the

adoption of this Section. (ORD-24-0020 § 2, 2024; ORD-08-0014 § 8, 2008: Ord. C-7246 § 1, 1994; Ord. C-7195 § 1, 1994; Ord. C-6250 § 1, 1986; Ord. C-5956 § 2, 1983: Ord. C-5717 § 1, 1981: Ord. C-5625 § 4 (part), 1980: prior code § 7221.4)

16.08.341 Marine Safety Rescue Boat Captain.

A. Those employees who are designated by the City as Marine Safety Rescue Boat Captain and who are regularly employed and paid for duties performed in or around the marinas as defined under Chapter 16.08 of the Municipal Code, which are essentially duties commonly performed by Harbor Police as defined under Section 830.330(b) of the Penal Code, shall be peace officers while engaged in the performance of duties in accordance with Section 803.33 of the Penal Code of the State of California.

B. The primary duties of those employees designated as Marine Safety Rescue Boat Captain shall include enforcing such laws and ordinances as the City Council may direct by regulation enacted, and which from time to time may be amended, pursuant to Section 16.08.970. Those employees covered by this Section are authorized to make an arrest pursuant to Section 836 of the Penal Code as to any public offense with respect to which there is immediate danger to person or property, or of the escape of the perpetrator of that offense, or pursuant to Sections 8597 or 8598 of the California Government Code.

C. Employees covered under this Section shall not be peace officers for the purpose of, and as set forth in Section 12025 and Section 12031 of the Penal Code.

D. Nothing in this Section is intended to or shall operate to change or shall have the effect of changing the status of employees of the City holding the classified position of Marine Safety Rescue Boat Captains from public or miscellaneous officers or employees to individual peace officers or safety members or classes or peace officers or safety members for purposes of retirement, workers' compensation or similar injury or death benefits or any other employee benefit or benefits to which the employees would not have been entitled as a public employee prior to the adoption of this Section. (ORD-24-0020 § 3, 2024; Ord. C-7246 § 2, 1994)

ARTICLE III. GENERAL REGULATIONS

16.08.350 Defacing public property.

No person shall wilfully injure, disfigure, deface, paint, damage, destroy, disturb, remove, or interfere with any buoy, float, sign, notice, fence, barrier, dock, pier, structure, improvement, harbor facility or other property owned, maintained, or controlled by the City or other governmental authority or any other property installed and maintained under permit from the Director within the marinas, Rainbow Harbor, the Esplanade at Rainbow Harbor and approaches thereto. (ORD-08-0014 § 9, 2008: Ord. C-5625 § 4 (part), 1980: prior code § 7222)

16.08.360 Right-of-way.

No person shall fail to yield the right-of-way to the operator of another motorboat when the latter is towing any object, structure, or person within the marinas. (Ord. C-5625 § 4 (part), 1980: prior code § 7222.1)

16.08.370 Horns and signals.

No person shall use or sound on any vessel within the marinas any signaling or warning device producing sound by the rapid interruption of a current of air by a rotating disk. This Section does not apply to a properly designated patrol boat upon which the use of such device is expressly authorized for emergency purposes. (Ord. C-5625 § 4 (part), 1980: prior code § 7222.2)

16.08.380 Unseaworthy vessels.

No person shall moor, dock, tie up, or permit to be moored, docked, or tied up within the marinas any vessel which is unseaworthy, dilapidated, or in a badly deteriorated condition or which is likely to sink or to damage docks, wharves, floats or other vessels and/or which might become a

menace to navigation. (Ord. C-5625 § 4 (part), 1980: prior code § 7222.3)

16.08.390 Aircraft.

No person shall land, take off, or operate any aircraft on the waters of the marinas. (Ord. C-5625 § 4 (part), 1980: prior code § 7222.4)

16.08.400 Vessel as place of abode—Permit.

No person shall use any vessel within or upon the waters of the marinas as a place of abode except pursuant to a permit issued by the Director in accordance with regulations adopted in accordance with the provisions of Section 16.08.970. (Ord. C-5625 § 4 (part), 1980: prior code § 7222.5)

16.08.410 Sale of fish.

No person shall bring ashore from any vessel within the marinas any fish, mollusks or crustaceans for the purpose of selling the same. (Ord. C-5625 § 4 (part), 1980: prior code § 7222.6)

16.08.420 Disposal of refuse.

No person shall throw, discharge, dump, place, deposit or leave any refuse, rubbish, sewage, waste matter, dead animals, fish, shellfish, bait, putrefying matter, oil, spirits, flammable liquid, coal tar, residuary product of coal, petroleum, asphalt, bitumen, carbonaceous material or other offensive matter of any kind into the waters of or upon a bank, sidewalk, seawall, wharf, wharf road, street leading to a wharf, float, pier, harbor structure, or beach within the marinas and shall be civilly liable to the City for all actual damages in addition to the reasonable costs actually incurred in the cleaning or abating activities. (Ord. C-5625 § 4 (part), 1980: prior code § 7222.7)

16.08.430 Cleaning fish.

No person shall clean fish, cut or otherwise prepare bait, except in the usual course of fishing, on the sidewalks, harbor structures, floats, piers, sidewalks, beaches or waters in the marinas. (Ord. C-5625 § 4 (part), 1980: prior code § 7222.8)

16.08.440 Digging holes on beaches.

No person shall dig or cause to be dug holes exceeding a depth of two feet (2') in or along the beaches of the marinas. Any person who digs or causes to be dug any hole in or along the beaches shall fill the hole before leaving the beach area. (Ord. C-5625 § 4 (part), 1980: prior code § 7222.9)

16.08.450 Bait gathering.

No person shall pick, gather, or remove any mollusks, crustaceans, seaweed or other living marine organisms from the pilings, floats, piers, seawalls or other harbor structures or from vessel hulls within the marinas except pursuant to a permit for such activity issued by the Director pursuant to Section 16.08.720. (Ord. C-5625 § 4 (part), 1980: prior code § 7222.10)

16.08.460 Fishing restrictions.

No person shall fish from the sidewalk, parkway, seawall or bulkhead in or adjacent to the following described areas:

A. Both sides of Rivo Alto Canal between Naples Canal and the southerly prolongation of the centerline of the Colonnade;

B. Both sides of Naples Canal between the westerly line of tract no. 500, a point approximately eighty feet (80') westerly of the prolongation of the westerly line of Geneva Walk, and the southerly prolongation of the centerline of the Colonnade;

C. The northerly side of Alamitos Bay beginning at the westerly terminus of Corso Di Napoli, being the westerly line of tract no. 500, thence easterly and northerly to Naples Canal;

D. The northerly side of Alamitos Bay beginning at Rivo Alto Canal, thence southerly and easterly along Corso Di Napoli and Vista Del Golfo and continuing along the various courses of the bulkhead line to the southeasterly prolongation of the southwesterly line of the Appian Way service road;

E. Both sides of Marina Drive Bridge across the San Gabriel River, except from platforms provided for the purpose of fishing;

F. Shoreline Marina, except from the fishing piers attached to the westerly mole;

G. Rainbow Harbor and Rainbow Marina, including the rock jetty, with the exception of fishing piers;

H. Commercial and public docks throughout Alamitos Bay;

I. Within the confines of the Golden Shore Marine Biological Reserve and the Jack Dunster Marine Biological Reserve;

J. Public walkway adjacent to Alamitos Bay Marina, basin 5.

K. Banks of the Los Angeles River, south of Ocean Boulevard, with the exception of the fishing piers. (ORD-10-0036, § 1, 2010; ORD-08-0014 § 10, 2008: Ord. C-7925 §§ 1, 2, 2004; Ord. C-7877 § 1, 2003: Ord. C-5956 § 3, 1983: Ord. C-5625 § 4 (part), 1980: prior code § 7222.11)

16.08.470 Three mile per hour speed limit—Restricted areas.

No person shall operate any vessel in the following designated areas at a rate of speed in excess of three (3) miles per hour:

A. Marina basins;

B. Naples Canal;

C. Shoreline Marina;

D. Rainbow Marina;

E. Marina Pacifica Channel and basins;

F. Spinnaker Cove Channel and basins;

G. Rainbow Harbor. (ORD-08-0014 § 11, 2008: Ord. C-6667 § 1, 1989: Ord. C-6250 § 2, 1986: Ord. C-5956 § 4, 1983: Ord. C-5625 § 4 (part), 1980: prior code § 7222.12)

16.08.471 Five mile per hour speed limit—Restricted area.

No person shall operate any vessel within Alamitos Bay at a rate of speed in excess of five (5) miles per hour. The provisions of this Section do not apply to the areas designated in Section 16.08.470, to Marine Stadium West between April 1 and September 30, inclusive, between the hours of 8 o'clock (8:00) A.M. to sunset. The provisions of this Section do not apply to the areas designated in Section 16.08.470, to Marine Stadium West between October 1 and March 31, inclusive, on Thursday through Sunday and on school holidays between the hours of 8 o'clock (8:00) a.m. to sunset, and on Monday through Wednesday, excluding school holidays, between the hours of 8 o'clock (8:00) a.m. to 4 o'clock (4:00) p.m. and between the hours of 6 o'clock (6:00) p.m. to sunset, or to Marine Stadium East for an organized marine event under permit issued by the City. (ORD-10-0022, § 1, 2010; Ord. C-6250 § 12, 1986)

16.08.472 Reckless operation.

No person shall use any vessel in the marinas or Alamitos Bay in a reckless or negligent manner so as to endanger the safety of persons or property or operate any vessel at a rate of speed which produces a wake which will cause injury to persons or property. (Ord. C-6250 § 13, 1986)

16.08.480 Waterskiing, aquaplaning and motorboat racing restricted.

No person shall engage in waterskiing, aquaplaning, jet skiing or motorboat racing within the marinas or Alamitos Bay. The provisions of this Section do not apply to Marine Stadium West or to Marine Stadium East for an organized marina event under permit of the Marine Bureau. (Ord. C-6250 § 3, 1986: Ord. C-5625 § 4 (part), 1980: prior code § 7222.13)

16.08.490 Obstruction of access.

No person shall at any time obstruct the free and easy access to and departure from any portion of any public landing, pier or wharf within the marinas. (Ord. C-5625 § 4 (part), 1980: prior code § 7222.14)

16.08.500 Automobile on wharves.

No person shall allow any automobile or other vehicle to enter upon a public wharf, pier or landing except to discharge or load freight or passengers. Vehicles ready to load shall have preference over those ready to discharge. (Ord. C-5625 § 4 (part), 1980: prior code § 7222.15)

16.08.501 Automobiles on Rainbow Harbor Esplanade.

No person shall allow any automobile or other vehicle, unless authorized by the Director, to enter

or park upon the Rainbow Harbor Esplanade. (ORD-08-0014 § 30, 2008)

16.08.502 Bicycles on Rainbow Harbor Esplanade.

Bicycle riding on the Rainbow Harbor Esplanade is prohibited in excess of three (3) miles per hour between the hours of ten o'clock (10:00) a.m. and ten o'clock (10:00) p.m., except City employees in the performance of their duties. (ORD-08-0014 § 31, 2008)

16.08.503 Roller skates, roller blades and skate boards on Rainbow Harbor Esplanade.

The riding of skate boards, roller skates or roller blades is prohibited on the Rainbow Harbor Esplanade. (ORD-08-0014 § 32, 2008)

16.08.504 Commercial activity on Rainbow Harbor Esplanade.

No person is allowed to sell, barter or peddle any good or service on the Rainbow Harbor Esplanade unless permitted by Chapter 5.73. (ORD-24-0002 § 16, 2024; ORD-08-0014 § 33, 2008)

16.08.510 Anchoring prohibited.

No person shall anchor any vessel in the marinas at any time, except in an emergency. (Ord. C-5625 § 4 (part), 1980: prior code § 7222.16)

16.08.520 Mooring—Designated areas.

No person shall moor, dock or tie up or permit any vessel to be moored, docked or tied up within the marinas except within an area designated for such purpose by the Director. (Ord. C-5625 § 4 (part), 1980: prior code § 7222.17)

16.08.530 Mooring—Dangerous prohibited.

No person shall moor, dock or tie up or permit any vessel to be moored, docked or tied up within the marinas in such place or manner as to obstruct, impede the passage of other vessels or create an unreasonable risk or danger to person or property. (Ord. C-5625 § 4 (part), 1980: prior code § 7222.18)

16.08.540 Mooring—Tying up to another vessel.

No person shall make fast or tie any vessel to a mooring or dock within the marinas whether occupied or not by another vessel or make fast or tie to a vessel already occupying a mooring or dock, except pursuant to a written permit issued by the Director and upon payment of the permit fee prescribed in regulations enacted pursuant to Section 16.08.970. This Section shall apply to rowboats and yacht tenders regularly carried aboard a vessel. (Ord. C-6250 § 4, 1986: Ord. C-5956 § 5, 1983: Ord. C-5625 § 4 (part), 1980: prior code § 7222.19)

16.08.550 Mooring—By permit or temporary mooring.

No person shall make fast or tie up any vessel to any wharf, pier, mooring gangway or dock within the marinas owned or operated by the City or constructed pursuant to a permit issued under Sections 16.08.760 or 16.08.780 unless procedure set forth in either Subsections A or B of this Section is followed:

A. A permit is issued pursuant to this Chapter and the written consent of the owner, agent or person in charge of the wharf, pier, mooring, gangway or dock has first been obtained; or

B. The vessel is moored in a marked and posted temporary vessel mooring area which is a wharf, pier, mooring, gangway or dock within a specified time limit for vessel mooring determined by the City Manager and approved by the City Council and set forth by signs and markings which the City has placed and maintained or caused to be placed and maintained and which give notice of the time limit for temporary mooring. (Ord. C-7043 § 4 (part), 1992: Ord. C-6250 § 5, 1986: Ord. C-5625 § 4 (part), 1980: prior code § 7222.20)

16.08.551 Temporary mooring areas for vessels.

Temporary mooring areas for vessels shall be those wharfs, piers, moorings, gangways or docks

within the marinas owned by the City; Use of City utilities (Gas, Water, Power) is prohibited at Temporary Mooring Areas unless approved by a permit from Director; Wharfs, piers, moorings, gangways or docks owned by the City that are posted and marked for temporary mooring are as follows:

A. Pierpoint Landing Dock, thirty (30) minutes temporary mooring;

B. Marina Park Long Dock, thirty (30) minutes temporary mooring;

C. Davies Long Dock, thirty (30) minutes temporary mooring;

D. Gangway A Shoreline Marina, thirty (30) minutes temporary mooring, except for the southernmost sixty feet (60') where public mooring is prohibited;

E. Dock 10, mooring for pump out only on the southernmost eighty feet (80') of dock, and three (3) hour maximum temporary mooring on the remaining two hundred twenty feet (220') within any 24-hour period;

F. Alamitos Bay pump out, mooring for the pumping out of the vessel's holding tank only; thirty (30) minute maximum;

G. Alamitos Bay Landing South Long Dock, three (3) hour maximum temporary mooring within any 24-hour period;

H. Alamitos Bay Landing North Long Dock, three (3) hour maximum temporary mooring within any 24-hour period;

I. Alamitos Bay Marina, Slip 3-2, three (3) hour maximum temporary mooring within any 24-hour period;

J. Alamitos Bay Marina, Slip 13-2, three (3) hour maximum temporary mooring within any 24-hour period;

K. Alamitos Bay Marina, Slip 14-1, three (3) hour maximum temporary mooring within any 24-hour period;

L. Alamitos Bay Marina, Harbormaster's Dock, thirty (30) minutes for pumping out of the vessel's holding tank, unless authorized by the Director for marina-related business; and

M. Rainbow Marina Dock 8, three (3) hour maximum temporary mooring within any 24-hour period.

Unauthorized mooring in these areas will result in vessel citation or impound in accordance with Subsection 16.08.300(D) and/or Section 16.08.810. (ORD-22-0020 § 5, 2022; ORD-08-0014 § 12, 2008: Ord. C-7043 § 7 (part), 1992)

16.08.560 Petroleum product use.

No person shall handle, keep, use or sell gasoline, distillate or any liquid petroleum products, other than lubricating oils, on docks, wharves or piers within the marinas except at such places as may be designated therefor by the Director with the approval of the Chief of the Fire Department, under such regulations, restrictions and limitations as may be imposed. (Ord. C-5625 § 4 (part), 1980: prior code § 7222.21)

16.08.570 Swimming prohibited.

No person shall swim or dive in the Long Beach Marina area, the Shoreline Marina, the Rainbow Marina, or Rainbow Harbor without the express permission of the Director, except in the following areas:

A. Marine Stadium East, within the swimming buoy markers along the south shore thereof;

B. Alamitos Bay, excluding the entrance channel and within three hundred feet (300') thereof. (ORD-08-0014 § 13, 2008: Ord. C-5625 § 4 (part), 1980: prior code § 7222.22)

16.08.580 Boarding vessels.

No person shall board, climb into or upon any vessel tied or anchored at any site or location situated within any publicly or privately owned marina without the written consent of the owner, his agent, or any other person having charge thereof, except a public officer or employee in the performance of his official duty or to protect life and property. (Ord. C-7043 § 4 (part), 1992: Ord. C-5625 § 4 (part), 1980: prior code § 7222.23)

16.08.581 Sailboard boats.

No person shall operate any sailboard boat, sit-on-top kayak, surfboard, parasail device, paddleboard, or kite surfboard in the following designated areas:

A. Shoreline Marina;

B. Rainbow Marina;

C. Rainbow Harbor;

D. The entrance channel of the Shoreline Marina, Rainbow Marina, or Rainbow Harbor, or within three hundred feet (300') thereof;

E. The entrance channel to the Alamitos Bay Marina or within five hundred (500) yards thereof.

"Sailboard boat" means a surfboard with a detachable mast and sail. (ORD-08-0014 § 14, 2008: Ord. C-7926 § 1, 2004: Ord. C-6250 § 6, 1986: Ord. C-5956 § 39, 1983)

16.08.582 Throwing rocks.

No person shall wilfully throw, hurl or project a stone, rock or other hard substance at or near a vessel in a marina. (Ord. C-7043 § 7 (part), 1992)

16.08.590 Obstructing officers in the performance of their duties.

No person shall resist, delay, or obstruct any of the persons designated in Section 16.08.340 in the discharge or attempt to discharge any duty imposed upon such person by law or refuse to obey any lawful order of any such person. (Ord. C-5625 § 4 (part), 1980: prior code § 7222.24)

16.08.600 Reserved.

Editor's note—ORD-21-0018 § 4, adopted June 8, 2021, repealed § 16.08.600 entitled "Fireworks," which derived from: prior code § 7222.25; and Ord. C-5625 § 4 (part), 1980. See. Ch. 8.81 of this Code for fireworks provisions.

16.08.610 Sand dolly use.

No person shall use any sand dolly within the marinas for a vessel exceeding sixteen feet (16') in overall length. (Ord. C-5625 § 4 (part), 1980: prior code § 7222.26)

16.08.620 Tying up vessel.

No person shall tie up any vessel lying at any wharf or any slip in the marinas unless fastened thereto in a manner approved by the Director. (Ord. C-5956 § 6, 1983: Ord. C-5625 § 4 (part), 1980: prior code § 7222.27)

16.08.630 Incoming and outgoing fairways.

The Director shall place or cause to be placed in the entrance channels of the marinas a connected line of buoys separating the incoming and outgoing fairways. No person shall cross or cause a vessel to cross the connected line of buoys. (Ord. C-5625 § 4 (part), 1980: prior code § 7222.28)

16.08.640 Racing events.

No person shall conduct or engage in any racing event in Alamitos Bay, Marine Stadium East or Marine Stadium West except pursuant to a permit issued by the Director. (Ord. C-7043 § 4 (part), 1992: Ord. C-5625 § 4 (part), 1980: prior code § 7222.29)

ARTICLE IV SPECIAL REGULATIONS

16.08.650 Marine Stadium West.

A. The operation of motorboats up to twenty-three feet (23') in length, not including swimstep, for the purpose of water skiing or wake boarding is permitted within areas of Marine Stadium West designated by the Director for that purpose. Within such designated areas, the five (5) mile per hour speed limit shall not be applicable between eight o'clock (8:00) a.m. and sunset during the period of May 1 and September 30, inclusive; between the hours of eight o'clock (8:00) a.m. and sunset on Thursday through Sunday and school holidays during the period of October 1 and April 30, inclusive; between the hours of eight o'clock (8:00) a.m. and four o'clock (4:00) p.m. on Monday through Wednesday, excluding school holidays, during the period of October 1 and April 30, inclusive; and between the hours of six o'clock (6:00) p.m. and sunset on Monday through Wednesday, excluding school holidays, during the period of October 1 and April 30, inclusive; provided, however, no person shall operate any vessel in Marine Stadium West in excess of thirty-five (35) miles per hour.

B. Within the Marine Stadium West, no person shall:

1. Within the northwest five hundred feet (500') of the extreme northwest end of Marine Stadium West, operate any vessel in excess of five

(5) miles per hour. The Director shall mark or cause to be marked said restricted speed area with appropriate buoys;

2. Operate vessels, except for motorboats up to twenty-three feet (23') in length, rowing shells, or other nonmotorized paddle vessels without a permit issued by the Director;

3. Operate personal watercraft. "Personal watercraft" shall mean a vessel less than thirteen feet (13') in length which uses an inboard motor powering a water jet pump or propeller as its primary source of motive power and which is designed to be operated by a person sitting, standing, or kneeling on the vessel rather than the conventional manner of sitting or standing inside the vessel;

4. Possess or consume any alcoholic beverage;

5. Swim without a permit issued by the Director;

6. Tow any object, structure or person with a towline in excess of seventy-five feet (75') in length;

7. Fail to beach immediately any vessel upon the lawful sounding of a warning device by the operator of an official patrol boat;

8. Follow in the wake of any motorboat at a distance of less than two hundred feet (200') when the motorboat is towing any object, structure, or person;

9. Ski without a flag;

10. Leave ski line in the water after a skier drops off. Ski line shall be pulled aboard immediately after skier drops off;

11. Operate a motorboat in any manner except as follows:

a. In a southeasterly direction when the boat is closer to the southwesterly shore of the Marine Stadium West than to the northeasterly shore thereof;

b. In a northwesterly direction when the boat is closer to the northeasterly shore of the Marine Stadium West than to the southwesterly shore thereof;

c. In a right turn when departing from the shore or when approaching the shore.

12. Operate any motorboat, except in cases of emergency, in any area other than the established traffic lane. The Director shall give notice of the location of a traffic lane or lanes in the Marine Stadium West consistent with the requirements of this Section by placing appropriate marking buoys therein;

13. Operate a motorboat towing more than one (1) person, except during organized events under a permit issued by the Marine Bureau;

14. Fail, when skiing, to wear an approved U.S.C.G. personal flotation device of serviceable condition and appropriate size;

15. Operate a motorboat unless the vessel is equipped with a means of disengaging and reversing its propulsion, except when participating in an organized event under a permit issued by the Marine Bureau;

16. Fish within the Marine Stadium West designated water ski area;

17. Operate a ski boom or any side towing apparatus.

C. The number of vessels permitted to be in use in the Marine Stadium West at any one (1) time shall be determined by the Director. (ORD-22-0020 § 6, 2022; ORD-10-0022 § 2, 2010; Ord. C-7611 §§ 1, 2, 1999; Ord. C-7017 § 1, 1992; Ord. C-6250 §§ 7, 8, 1986; Ord. C-5956 §§ 7, 8, 1983; Ord. C-5625 § 4 (part), 1980: prior code § 7223)

16.08.660 Boat operation in Marine Stadium East.

The speed limits imposed by Sections 16.08.470 and 16.08.471 do not apply at Marine Stadium East for an organized marine event under a permit issued by the Marine Bureau. (Ord. C-6250 § 9, 1986: Ord. C-5956 § 9, 1983: Ord. C-5625 § 4 (part), 1980: prior code § 7223.1)

16.08.670 Small boat launching ramps—Marine Stadium West—Marine Stadium East.

A. No person shall park a motor vehicle in the small boat launching ramp parking lot in either Marine Stadium East or Marine Stadium West unless such vehicle is towing a boat trailer or is carrying a boat. The provisions of this subsec-

tion do not apply to a person participating in an organized event under a permit issued by the Marine Bureau.

B. No person shall park in either Marine Stadium East or Marine Stadium West parking lot or use either of the small boat launching ramp facil-

ities of Marine Stadium East or Marine Stadium West except upon payment of a parking fee as prescribed in regulations enacted pursuant to Section 16.08.970. The provisions of this Subsection do not apply to a person participating in an organized event under a permit issued by the Marine Bureau.

C. No person shall discharge waste material from, sleep in, or store a trailer, camper or other vehicle in the small boat launching ramp parking lot in either Marine Stadium East or Marine Stadium West.

D. The launching ramp and parking lots of either Marine Stadium East or Marine Stadium West shall be used only in accordance with regulations enacted pursuant to Section 16.08.970 and, where applicable, in accordance with the terms and conditions of permits issued by the Marine Bureau. (Ord. C-6250 § 10, 1986: Ord. C-5625 § 4 (part), 1980: prior code § 7223.2)

16.08.680 No watercraft.

No surfboard, paddleboard or board boat shall be allowed in Shoreline Marina, Rainbow Marina or Rainbow Harbor unless authorized in writing by the Director. (ORD-08-0014 § 15, 2008: Ord. C-7043 § 7 (part), 1992)

16.08.690 Beaching of vessels.

No person shall beach, launch or operate any vessel along the shoreline within the designated swimming area adjacent to Marine Park or along the shoreline of that portion of Alamitos Bay south of Second Street except between Isthmus Place and Fifty-fifth Place and at street ends between Fifty-fifth Place and Seventy-first Place. No person shall beach a sailboat in an authorized area without first lowering the sails. (Ord. C-6250 § 11, 1986: Ord. C-5625 § 4 (part), 1980: prior code § 7223.4)

16.08.700 Derelicts and stray vessels.

Any stray vessels, derelicts, hulks, wrecks, or parts of any vessel sunk, beached, anchored, or tied up in any place and not in the lawful possession or control of the owner of the property or his agent shall be deemed a hazard to navigation and a public nuisance and subject to removal and disposition as provided in this Section. The Director shall remove and store or cause to be removed and stored for a period not to exceed sixty (60) days any such stray vessel, derelict, hulk, wreck, or part of a wreck. Upon the expiration of the sixty (60) days, the property shall be sold at public auction in accordance with the provisions of Article 4, Chapter 2 of Division 3 of the Harbors and Navigation Code (commencing at Section 500 thereof). The owner of the vessel shall be civilly liable to the City for all costs and expenses incurred by the City in raising, towing, keeping, storing and selling the property. All such costs shall be a lien on the property and the proceeds of sale thereof. (Ord. C-5625 § 4 (part), 1980: prior code § 7223.5)

16.08.710 Unseaworthy vessels.

Any vessel which is unseaworthy, dilapidated or in a badly deteriorated condition or which is likely to sink or to damage docks, wharves, floats or other vessels or which might become a menace to navigation shall be removed from the waters of the marinas upon the order of the Director. If the owner of any vessel or his agent refuses to comply with the Director's order, the refusal shall constitute grounds for revocation of any permit issued by the Director for mooring or berthing the vessel. The Director may order the vessel removed and stored for a period not to exceed sixty (60) days. Upon the expiration of the sixty (60) day period, the vessel shall be sold at public auction in accordance with the provisions of Article 4 of Chapter 2 of Division 3 of the Harbors and Navigation Code (commencing with Section 500 thereof). The owner of the vessel shall be civilly liable to the City for all costs, fees, damages and expenses incurred by the City in raising, towing, keeping, storing and selling the vessel. All such costs shall be a lien upon the vessel and the proceeds of sale thereof. (Ord. C-5625 § 4 (part), 1980: prior code § 7223.6)

16.08.720 Bait gathering—Permit.

A. Any person who owns and operates a retail or wholesale establishment for the sale of bait

and maintains a valid business license for the establishment (whether or not in the City) who desires to remove any molluscs, crustaceans, seaweed or other living marine organisms from pilings, floats, piers, seawalls or other harbor structures within the marinas shall obtain a bait gatherer's permit from the Director. Any such person shall pay an annual fee in advance as determined by the City Council by resolution per permit. The number of permits to be issued under this Section shall be prescribed in regulations enacted pursuant to Section 16.08.970.

B. The holder of a bait gatherer's permit may, from time to time and upon such form as is provided by the Director, designate such person or persons as are authorized as employees or contracts of permittee to act on permittee's behalf in exercising permittee's right under the permit.

C. Violation of permit conditions, marina regulations, or relevant City ordinances by permittee or by an authorized person shall be cause for revocation of a permit or for refusal to renew a permit.

D. This Section does not apply to or prohibit the removal of molluscs, crustaceans, seaweed or other living marine organisms from pilings, floats, piers, seawalls or other harbor structures in the course of maintenance work conducted by or with the approval of the Director, nor to such maintenance work performed on a vessel with the approval of the vessel owner, nor shall it prohibit the Director from granting approval for the picking, gathering or removal of such organisms for scientific, educational or test purposes. (ORD-10-0014, § 21, 2010; Ord. C-5956 § 11, 1983; Ord. C-5625 § 4 (part), 1980: prior code § 7223.7)

16.08.730 Private pier location.

No private pier, dock, float, or wharf shall be constructed or maintained along the westerly and southerly shore of Alamitos Bay between the Second Street bridge and Isthmus Place, nor on the southerly shore of Alamitos Bay between Fifty-fifth Place and Sixty-first Place, nor between Sixty-third Place and the boundary of the City. (Ord. C-5625 § 4 (part), 1980: prior code § 7223.8)

ARTICLE V. PRIVATE PIERS, WHARVES AND DOCKS

16.08.740 Pierhead and bulkhead lines established.

Pierhead and bulkhead lines are established for the Long Beach Marina area as the lines are shown on Drawing No. E-146, prepared by and on file in the office of the City Engineer, which drawing is entitled "Harbor Lines Alamitos Bay" and is dated April 2, 1951, as thereafter revised. (ORD-06-0055 § 1, 2006: Ord. C-5625 § 4 (part), 1980: prior code § 7224)

16.08.750 Construction beyond bulkhead or pierhead line.

No person shall build, construct, erect, extend, or locate within, upon or over the waters of the Long Beach Marina area, beyond and channelward of the pierhead line, (as defined in Section 16.08.740) any float, pier, landing, wharf, open pile structure or device or structure of whatsoever kind or nature. This Section does not apply to any structure or device constructed, erected, or extended by the City. The Director may grant a permit for the erection or maintenance of a structure beyond the channelward of a pierhead or bulkhead line in cases where particular and unusual circumstances exist which would render compliance with this Section unduly burdensome or impractical. (Ord. C-7590 § 1, 1999: Ord. C-5625 § 4 (part), 1980: prior code § 7224.1)

16.08.760 Construction permit—Required.

A. No person shall construct, reconstruct or maintain any wharf, pier, landing, float, bulkhead, seawall or other structure of any kind whatsoever within the limits of the Long Beach Marina area therein, for the benefit or use of any private person without first obtaining a permit therefor issued by the Director. No person shall make any filling of any description at any point below the line of the mean high tide within the area; or dredge or excavate therein for the benefit or use of any private person without first obtaining a permit therefor issued by the City Council. Such permits shall be

issued only to the fee owner of real property fronting on a waterway within the Long Beach Marina area or to a homeowner's association as provided in Section 16.08.780 for a harbor structure in front of or adjacent to the real property. Prior to the issuance of any such permit, the applicant shall submit plans and specifications for each such structure, filling, dredging or excavation to the Director or City Council, whichever is applicable, for approval and shall obtain a coastal development permit from the California Coastal Commission. Each such structure shall conform to the minimum structural requirements of "Plans and Specifications No. R-4858/Revised 10/94, for the Erection of Structures Channelward of the Bulkhead Lines in the Long Beach Marina Area in the City of Long Beach, California".

B. Each applicant for a permit under the provisions of this Section shall pay a plan check and an inspection fee as prescribed in regulations enacted pursuant to Section 16.08.970.

C. Any permit issued by the Director or the City Council pursuant to this Section shall be void unless the permittee, within sixty (60) days from the date of issuance thereof, commences construction of the structure or operation authorized thereby and proceeds diligently and in good faith therewith or obtains a written extension of time from the Director.

D. Each holder of a structure permit issued pursuant to this Section shall pay to the City an annual inspection fee as prescribed in regulations enacted pursuant to Section 16.08.970.

E. If any permittee fails or refuses to commence and diligently prosecute to completion any repairs to a harbor structure as ordered by the Director within the time specified thereof and additional inspections of the harbor structure are required, the permittee shall pay to the City a reinspection fee for each occasion the harbor structure is inspected for compliance with the order of repair in an amount prescribed in regulations enacted pursuant to Section 16.08.970.

F. No annual inspection fee shall be required in private marinas on private property.

G. Permits issued pursuant to the provisions of this Section and Section 16.08.850 will automatically terminate upon a sale of the permittee's interest in the real property unless the permittee requests the same be transferred and the approval of the Director is first obtained. The permittee shall promptly notify the Director of the transfer of ownership, the effective date thereof, and pay to the City a transfer fee as prescribed in regulations enacted pursuant to Section 16.08.970.

H. In the event any permittee shall fail or refuse to pay when due any annual inspection fee or transfer fee, the Director shall cancel said permit for which payment is delinquent unless the permittee requests, in writing, and is granted by said Director, an extension of time for payment. Upon cancellation of any permit, the permittee shall remove or cause to be removed the structure and discontinue the activities authorized by said permit within the time specified by the Director. In the event said permittee shall fail to remove the structure and discontinue the activities as directed within the time specified by the Director, the Director shall have the right and authority to immediately remove any such harbor structure at the permittee's cost. (Ord. C-7590 § 2, 1999: Ord. C-7043 § 4 (part), 1992: Ord. C-5956 §§ 13, 14, 15, 1983; Ord. C-5625 § 4 (part), 1980: prior code § 7224.2)

16.08.770 Construction permit—Application.

Except as provided in Section 16.08.780, only the fee owner of real property who resides upon the real property fronting on any waterway in the Long Beach Marina area may apply for and have issued to him a permit pursuant to Section 16.08.760 to construct and maintain a pier, float, or seawall mooring in front of and adjacent to the real property of the owner. Nothing contained in this Section shall be construed as creating an interest in property or the waters of the Long Beach Marina area which can be transferred or otherwise disposed of except in accordance with the provisions of Section 16.08.760. (Ord. C-5625 § 4 (part), 1980: prior code § 7224.3)

16.08.780 Construction permit—Homeowner's association.

In the event a subdivision of lands or the conversion of a building to a condominium, community apartment, stock cooperative project or a time share ownership and the: (i) subdivision or building fronts on a waterway in the Long Beach Marina area; (ii) consists of ten (10) or more residential units; and (iii) the Director determines that the residents could more effectively and efficiently be served by a common pier, brow and float structure or structures, a permit for said common structure or structures may be issued by the Director pursuant to Section 16.08.760 subject to the following findings and conditions:

A. An association has been formed by the several owners within said subdivision, condominium, community apartment, stock cooperative project or time share project, which association will be legally responsible for the construction, administration and maintenance of said common structure or structures, and which association shall be responsible for compliance with all provisions of law including this Chapter, as to matters relating to said structure.

B. The design of said structure or structures is approved by the Director.

C. The association shall agree to provide the Director with a list of all members of the association, all vessels assigned mooring rights at said structure or structures, including the slip assignment of each vessel and the name and residence address of each vessel owner or his agent within ten (10) days of any change of association membership, mooring assignment, or ownership of a vessel.

D. If the association's charges for use of said structures are limited to those amounts needed to compensate the association for expenses actually incurred for construction, maintenance, repair, replacement, operation, and security, the fees payable pursuant to Subsections 16.08.760.B, 16.08.760.E, and 16.08.760.F shall be the noncommercial rates prescribed in regulations enacted pursuant to Section 16.08.970.

E. No commercial use may be made of any slip or any part of said structure or structures except by separate permit issued by the City Council upon the recommendation by the Director.

F. The Director shall be authorized to limit and specify the number and type of vessels that may utilize said structure or structures. (Ord. C-7590 § 3, 1999: Ord. C-5956 § 16, 1983: Ord. C-5625 § 4 (part), 1980: prior code § 7224.4)

16.08.790 Dangerous wharves or piers.

The Director shall notify the permittee of any wharf, dock, or pier or his agent, in writing, of the defective or dangerous condition of any such wharf or pier. Such person shall repair the same or cause its complete removal within sixty (60) days thereafter. The person shall promptly erect fences or other barriers to prevent persons from using or going upon the same until it is repaired or removed. The Director may put up fences or such other barriers as may be necessary for the protection of the public or the Director may remove such structures at the expense of the permittee. (Ord. C-5625 § 4 (part), 1980: prior code § 7224.5)

16.08.800 Removal of debris.

In the event any privately owned wharf, dock or pier, or any portion thereof, or any material on such wharf, dock or pier falls into the waters of the marinas, it shall be the duty of the permittee or his agent to remove the material from the waters, and if he fails to do so, the Director may remove or cause the same to be removed and the cost thereof shall be paid upon demand by the permittee. (Ord. C-5625 § 4 (part), 1980: prior code § 7224.6)

ARTICLE VI MOORING AREAS

16.08.810 Authorized area, manner required.

No vessel shall be moored or docked in the marinas except within areas designated for such purpose by the Director. The Director shall be authorized to take such action as is reasonably necessary to move any vessel moored or docked in an unauthorized area or moored or docked in an unauthorized manner. The owner of any such vessel shall pay to the City all costs incurred in

moving, keeping and storing any such vessel. (Ord. C-5625 § 4 (part), 1980: prior code § 7225)

16.08.820 Nonliability of City.

The removal of any vessel by the Bureau due to unsafe or dangerous mooring or mooring in an unauthorized area or due to the vessel's being in an unsafe or dangerous condition shall be without liability to the City, the Bureau or their personnel. (Ord. C-5625 § 4 (part), 1980: prior code § 7225.1)

16.08.830 Wrecked or sunken vessels.

Whenever a vessel is wrecked or sunk in the marinas or any water area within the limits of the City, accidentally or otherwise, the owner thereof shall immediately mark it by a buoy during the day and by a lighted lantern at night and maintain such markings until the sunken vessel or obstruction is removed. It is unlawful for any person owning a vessel or having charge of a vessel to fail to mark the location of a wrecked or sunken vessel. The owner thereof shall immediately commence the removal of the obstruction and shall prosecute the removal diligently to completion, and the failure to do so shall constitute an abandonment of the vessel and subject the vessel to removal and disposition in accordance with the provisions of Section 16.08.710. (Ord. C-5625 § 4 (part), 1980: prior code § 7225.2)

16.08.840 Temporary use of mooring of another.

The Director shall have the right to permit the temporary use of any vacant mooring or dock within the marinas; provided, however, the Director shall make reasonable efforts to locate the permittee thereof to obtain that permittee's consent prior to authorizing any such mooring. In the event the Director has granted such permission, no person temporarily using such mooring or dock shall fail immediately to remove any vessel therefrom upon order of the Director or the permittee thereof so to do. (Ord. C-5956 § 17, 1983: Ord. C-5625 § 4 (part), 1980: prior code § 7225.3)

ARTICLE VII MOORING PERMITS AND FEES

16.08.850 Seawall permit and fees.

A. The fee owner of real property fronting on a waterway within the Long Beach Marina area who has a structure connected to a publicly owned seawall, which structure was constructed pursuant to a permit issued by the Director, pursuant to Sections 16.08.750, 16.08.760 or 16.08.780, shall obtain a permit for every vessel moored thereat from the Director and shall pay annually to the City, in addition to the fees prescribed in Section 16.08.760, a seawall mooring fee in the amount prescribed in regulations enacted pursuant to Section 16.08.970.

B. Vessels under ten feet (10′) moored to davits for which a permit has been obtained pursuant to Section 16.08.760 shall be exempt from the seawall mooring fee. (Ord. C-7590 § 4, 1999: Ord. C-6749 § 1, 1990: Ord. C-5956 § 18, 1983; Ord. C-5625 § 4 (part), 1980: prior code § 7226)

16.08.860 Shore mooring permit and fees.

A. The owner of every vessel moored in the Long Beach Marina area to the shore shall obtain a permit therefor from the Director and shall pay annually to the City a shore mooring fee in the amount prescribed in regulations enacted pursuant to Section 16.08.970.

B. Shore mooring permits shall be issued only to owners of vessels permitted to use shore moorings. The shore mooring permits are nontransferable.

C. Shore moorings for sand dollies, which consist of a steel ring mounted to the seawall with numbers assigned painted thereon, shall be placed at such locations as the Director shall designate. (Ord. C-5625 § 4 (part), 1980: prior code § 7226.1)

16.08.870 Cancellation of permit.

Any permit issued by the Director pursuant to Sections 16.08.850 or 16.08.860, may be cancelled at any time upon giving a five (5) day written notice to the permittee of the cancellation. The mailing of a notice to the permittee at the address

designated on his permit shall be deemed to be sufficient notice of cancellation. Upon the cancellation of the permit, it shall be the duty of the permittee immediately to remove his vessel and/or harbor structure prior to the date of cancellation specified in the notice. If he fails to remove the same, the Director shall remove or cause the same to be removed at the permittee's cost. (Ord. C-5625 § 4 (part), 1980: prior code § 7226.2)

16.08.880 Transfer.

Seawall permits may be transferred only in accordance with the provisions of Subsections 16.08.760.H and 16.08.780.C, to a person who is the owner of a vessel and the Director determines that the mooring or dock is adequate for such vessel. (Ord. C-5956 § 19, 1983: Ord. C-5625 § 4 (part), 1980: prior code § 7226.3)

16.08.890 Shore mooring waiting list administrative fee.

In addition to any fee required by Section 16.08.860, any person who submits an application for a shore mooring within the Long Beach Marina area, which application is filed in the separate waiting list of pending applications for shore moorings, shall pay a one (1) time waiting list administrative fee in the amount prescribed in regulations enacted pursuant to Section 16.08.970. (Ord. C-5625 § 4 (part), 1980: prior code § 7226.4)

ARTICLE VIII. MARINA SLIP PERMITS AND FEES

16.08.900 Required.

A. No person shall berth any vessel at any slip within the Marina Basins, the Shoreline Marina, the Rainbow Marina or the Rainbow Harbor without first obtaining a permit from the Director. Such permit, except for a permit for a visiting vessel, shall include a declaration from the owner that the Marina Basins or other marina is the situs for his or her vessel for purposes of levying by the City. Every person who has been issued a permit pursuant to this Section shall pay to the City such fees and deposits as are prescribed in regulations enacted pursuant to Section 16.08.970.

B. Any deposit made or required shall not be refunded in the event the permit for occupancy is granted. It shall, however, be refunded, less an administrative processing fee, in the event an application is withdrawn prior to the issuance of such permit. Subject to the prior approval of the City Council, a permit may be granted to the United States of America, the State, the County, the City, or to any public agency thereof, to berth a vessel within the marinas without the payment of a fee therefor. (ORD-08-0014 § 16, 2008: Ord. C-5956 § 20, 1983: Ord. C-5625 § 4 (part), 1980: prior code § 7227)

16.08.910 Reserved.

Editor's note—ORD-16-0017 § 2, adopted Aug. 2, 2016, repealed § 16.08.910 entitled "Waiting list administration fee", which derived from: prior code § 7227.1; and Ord. C-5625 § 4 (part), 1980.

16.08.920 Commercial vessels.

No permit for a slip within the marinas shall be granted for a vessel which is used for commercial purposes except for a vessel operating under a contract or permit authorized by the City Council. (Ord. C-5625 § 4 (part), 1980: prior code § 7227.2)

16.08.930 Visiting vessels.

Owners, operators or persons in charge of visiting vessels shall obtain a permit from the Director for use of slips and related facilities at the marinas and pay rental fees and charges as prescribed in regulations enacted pursuant to Section 16.08.970. The Director may, but is not required to, exempt visiting vessels from such fees and charges under any of the following conditions:

A. Upon written request from the organizer of a boating event in order to permit participation of the visiting vessel in the boating event; such exemption will be limited to a period not exceeding forty-eight (48) hours unless the Director determines that the event is one of special significance to the City; or

B. When seeking emergency shelter due to adverse weather conditions, mechanical or structural failures, or any other emergency condition requiring temporary berthing. The temporary berthing, as a result of the condition under which the vessel sought shelter, may be continued at the lineal foot rate specified in Section 16.08.900, prorated daily, and the length of the temporary emergency stay to be determined by the Director. (Ord. C-5625 § 4 (part), 1980: prior code § 7227.3)

16.08.940 Small boat storage rack.

No person shall store any small boat in excess of ten feet (10') in length in the small boat storage rack facilities owned or operated by the City without a permit from the Director. A permittee shall pay to the City, monthly in advance, a fee in the amount prescribed in regulations enacted pursuant to Section 16.08.970. The application for such permit shall be accompanied by a sum of money equal to the first month's rental. Any permit issued pursuant to this Section may be canceled by the Director for nonpayment of the fee upon five (5) days' written notice to the permittee. (Ord. C-5956 § 21, 1983: Ord. C-5625 § 4 (part), 1980: prior code § 7227.4)

16.08.950 Temporary use by another vessel.

Unless otherwise directed by the Director or provided for in this Chapter, no person holding a permit issued pursuant to Section 16.08.900 shall allow any vessel to be moored within an assigned slip space other than the vessel specified in the permit. The Director, upon presentation of a Bureau application form executed by both the person holding the permit issued pursuant to Section 16.08.900 and the person having ownership or control of an alternate vessel, may allow temporary use of an assigned slip by an alternate vessel. The temporary use shall be subject to such time limitations and such terms and conditions as the Director may prescribe. An administration fee in an amount prescribed in regulations enacted pursuant to Section 16.08.970 shall be paid at the time the application is presented. (Ord. C-5625 § 4 (part), 1980: prior code § 7227.5)

16.08.960 Temporary reassignment.

When, by reason of damage or necessary repairs to a slip, the slip is unusable, the Director may temporarily reassign the mooring of any vessel from the unusable slip to another slip during the time required for repair or reconstruction of the slip. In the event of the temporary reassignment, the fees payable by the permittee may be the same as those applicable at the slip originally assigned regardless of the length of the slip to which the temporary reassignment is made. (Ord. C-5625 § 4 (part), 1980: prior code § 7227.6)

ARTICLE IX. MISCELLANEOUS PROVISIONS

16.08.970 Regulations establishment.

The City Council may adopt, repeal, amend and modify regulations regarding the berthing of vessels and other activities and operations within the marinas, harbors and mooring areas. Any and all fees or service charges established pursuant to the provisions of this Chapter shall be enacted by resolution of the City Council. Upon adoption, repeal, amendment or modification of the regulations by the City Council, the regulation shall be filed in the office of the City Clerk and posted in a conspicuous place or places within the marina. Any person who violates any such regulation shall be subject to the penalties provided for in Section 1.32.010 of this Code. As to any person who is a permittee under the provisions of this Chapter, violation of any such regulation, in addition to the penalties applicable to persons generally, shall be cause for revocation and cancellation of the person's permit. (ORD-08-0014 § 17, 2008: ORD-06-0039 § 5, 2006: Ord. C-5625 § 4 (part), 1980: prior code § 7228)

16.08.980 Fees payable in advance.

All fees required to be paid by this Chapter are payable in advance, except for those fees prescribed in Subsection F of Section 16.08.760. Every person required to pay any fee, charge or cost prescribed by this Chapter, who fails to pay within ten (10) days after the same has become due must pay, in addition to the amount of the fee, a sum

equal to ten percent (10%) thereof. (Ord. C-5956 § 22, 1983: Ord. C-5625 § 4 (part), 1980: prior code § 7228.1)

16.08.985 Penalty.

Violation of any provision of Section 16.08.551 (temporary mooring) is an infraction punishable by a fine not to exceed one hundred dollars ($100.00). (Ord. C-7043 § 7 (part), 1992)

16.08.990 Refunds.

If any permit issued pursuant to this Chapter is canceled because the permittee has violated a condition of the permit or any rule, regulation, or law relating to permittee's conduct in operating, maintaining, or mooring a vessel in the marinas, no portion of the permit fee paid by permittee shall be refunded. If the permit is canceled for any other reason, then the unearned portion of the permit fee may be refunded in accordance with Chapter 3.48 of this Code. (ORD-06-0016 § 1, 2006: Ord. C-5625 § 4 (part), 1980: prior code § 7228.2)

CHAPTER 16.12 PACIFIC OCEAN AREAS

ARTICLE I. DEFINITIONS

16.12.010 Generally.

The words and phrases defined in Sections 16.12.020 through 16.12.110 whenever used in this Chapter shall have the meanings indicated unless the context requires a different meaning. (Ord. C-5625 § 6 (part), 1980: prior code § 7230 (part))

16.12.020 Bureau.

"Bureau" means the Marine Bureau, a division of the tidelands agency of the City. (Ord. C-5625 § 6 (part), 1980: prior code § 7230(f))

16.12.030 City Manager.

"City Manager" means the City Manager of the City of Long Beach. (Ord. C-5625 § 6 (part), 1980: prior code § 7230(h))

16.12.040 Claremont Avenue launching ramp.

"Claremont Avenue launching ramp" means and includes that area easterly of and contiguous with the Claremont Avenue parking lot designated by the Director of the Marina Department as a surf-sail launching facility. (Ord. C-5625 § 6 (part), 1980: prior code § 7230(d))

16.12.050 Director.

"Director" means the Manager of a Marine Bureau. (Ord. C-5625 § 6 (part), 1980: prior code § 7230(g))

16.12.060 Golden Shore Marine Biological Reserve and Catalina Landing.

"Golden Shore Marine Biological Reserve" and "Catalina Landing" mean those areas outlined on Drawing D-504 prepared by the City Engineer, which drawing is on file in the office of the City Clerk. (ORD-22-0020 § 8, 2022; Ord. C-5625 § 6 (part), 1980: prior code § 7230(e))

16.12.061 South Shore small boat launching ramp.

"South Shore small boat launching ramp" means that area outlined on drawings prepared by the City Engineer, which drawings are on file in the office of the City Clerk. (ORD-22-0020 § 9, 2022; Ord. C-7043 § 8 (part), 1992)

16.12.070 Mouth of the Los Angeles River.

"Mouth of the Los Angeles River" means that portion of the near shore ocean area extending westerly and northerly to the head of navigation of the Los Angeles River (also described as the Los Angeles County flood control channel) from a line beginning on Pier J at latitude 33° 45′ 2.1″ N in longitude 118° 11′ 14.2″ W; thence easterly along the northern boundary of Commercial Anchorage E to latitude 33° 45′ 13.8″ N, longitude 118° 10′ 36.0″ W; thence northerly to the shoreline at latitude 33° 45′ 49.6″ N, longitude 118° 10′ 36.0″ W. (Ord. 5625 § 6 (part), 1980: prior code § 7230(c))

16.12.080 Nearshore ocean area.

"Nearshore ocean area" means that portion of the Pacific Ocean within the limits of the City

shoreward of a line extending northwesterly from Light "1" of the Alamitos Bay West Jetty to the southern marker light on Island White, thence westerly to the stern of the Queen Mary. (Ord. C-6366 § 1, 1987: Ord. C-5956 § 23, 1983: Ord. C-5625 § 6 (part), 1980: prior code § 7230(b))

16.12.090 Person.

"Person" means and includes any individual, partnership, corporation, organization, association, federal, State and local governmental entity or political subdivision or agency thereof. (Ord. C-5625 § 6 (part), 1980: prior code § 7230(j))

16.12.100 Protected ocean swimming area.

"Protected ocean swimming area" means that portion of the Pacific Ocean within the limits of the City and within the near shore ocean area designated by the Director as a swimming area shoreward of a line marked with a series of white marker buoys located approximately eight hundred feet (800') apart and extending generally in an easterly and westerly direction approximately parallel to the shoreline of the City's public bathing beaches between the southerly prolongation of the westerly line of First Place and the southerly prolongation of the centerline of the westerly jetty of the Alamitos Bay entrance channel. (Ord. C-5625 § 6 (part), 1980: prior code § 7230(a))

16.12.110 Vessel.

"Vessel" means and includes ships of all kinds regardless of the manner of propulsion and every structure designed to be, adapted to be, or capable of being navigated or operated on water from place to place for the transportation of merchandise, persons or for any other purpose. (Ord. C-5625 § 6 (part), 1980: prior code § 7230(i))

ARTICLE II. NEARSHORE OCEAN AREAS

16.12.120 Vessels restricted from swimming area.

No person shall operate any vessel within the protected ocean swimming area except for the purpose of launching from and landing at a small boat launching facility designated and posted as such by the Director. The provisions of this Section do not apply to vessels operated by or for the City, the County, the State or the United States or an agency or instrumentality thereof when engaged in the performance of an official duty. (Ord. C-5625 § 6 (part), 1980: prior code § 7231)

16.12.130 Launch from or landing on beach.

No person shall launch or land any vessel from the beach, shore or surf of the protected ocean swimming area or use any vessel in the surf except as provided in this Section. In launching from or landing at the beach, shore, or surf, the operator of any vessel shall select a course as near to right angles to the beach as navigation allows and shall not exceed five (5) miles per hour. No person shall use any vessel in a reckless or negligent manner so as to endanger swimmers within the protected ocean-swimming area. The Director shall designate and post specific areas of the beach, shore and surf where vessels may be launched, landed, moored, beached and tied up and may, by regulation, designate the types of vessel appropriate to the area, the times and dates of use and the rules applicable to the use of the area. This Section does not apply to vessels and other devices operated by and for the City, the County, the State, or the United States or any agency or instrumentality thereof when engaged in the performance of an official duty. (Ord. C-6252 § 1, 1986: Ord. C-5625 § 6 (part), 1980: prior code § 7231.1)

16.12.131 Launch from or landing on the shores or rocks in the San Gabriel River.

No person shall launch or land any vessel from the shores or rocks in the San Gabriel River within the limits of the City. (Ord. C-6366 § 3, 1987)

16.12.140 Water skiing and aquaplaning.

No person shall water ski, aquaplane, or use a similar device within the near shore ocean area

except in areas thereof designated and marked by the Director for that purpose. Within such designated areas no person shall:

A. Operate a vessel between sunrise and sunset in excess of thirty-five (35) miles per hour;

B. Operate a vessel between sunset and sunrise in excess of five (5) miles per hour;

C. Tow any object, structure, or person with a towline in excess of seventy-five feet (75') in length;

D. Possess or consume any alcoholic beverage;

E. Fail to stop any vessel upon the lawful sounding of a warning device by the operator of an official patrol boat;

F. Follow in the wake of any vessel at a distance of less than two hundred feet (200') when the vessel is towing any object, structure or person;

G. Operate a vessel in a reckless or negligent manner so as to endanger the life, limb or property of any person. (Ord. C-5625 § 6 (part), 1980: prior code § 7231.2)

16.12.150 Racing events.

No person shall conduct or engage in any racing event within the nearshore ocean area except pursuant to a permit issued by the Director. (Ord. C-5625 § 6 (part), 1980: prior code § 7231.3)

16.12.151 Speed limit.

No person shall operate a vessel in excess of the designated speed limit in the nearshore ocean area. The provisions of this Section shall not apply to the water areas within the harbor district of the City.

A. No person shall operate a vessel in the nearshore ocean area in excess of thirty-five (35) miles per hour.

B. No person shall operate a vessel in excess of five (5) miles per hour in the mouth of the Los Angeles River from the Ocean Boulevard bridge south and east to a line extending from the stern of the Queen Mary to the east marker light of Island Grissom.

C. No person shall operate a vessel in excess of five (5) miles per hour in that portion of the San Gabriel River located within the limits of the City. (Ord. C-6366 § 2, 1987: Ord. C-5956 § 40, 1983)

16.12.152 Restricted area.

No person shall operate any vessel, surfboard, paddleboard or board boat, or swim in the water area between the easterly mole of the Downtown Shoreline Marina and Oil Island Grissom. The provisions of this Section shall not be applicable to City employees performing an official duty. (Ord. C-5956 § 41, 1983)

16.12.160 Mooring or anchoring—Nearshore ocean area.

A. No person shall anchor any vessel, raft, barge, or float within the mouth of the Los Angeles River.

B. No person shall anchor, moor, tie or otherwise keep or maintain any vessel, raft, barge or float within the nearshore ocean area easterly of the line described in Section 16.12.070 without a permit issued by the Director.

C. Any vessel, raft, barge or float which is anchored, moored, tied or otherwise kept or maintained in said areas in violation of this Section may be removed by the Director and stored at the risk and expense of the owner of the vessel, raft, barge or float at such location as may be designated by the Director. The owner of any such vessel, raft, barge or float shall be civilly liable to the City for all costs incurred in removal and storage. The costs of removal and storage shall be a lien dependent upon possession upon the vessel, raft, barge or float or the proceeds of the sale thereof. If the vessel, raft, barge or float is not claimed by the owner thereof within sixty (60) days after notice to the owner, the vessel, raft, barge or float shall be sold at public auction in accordance with the provisions of Article 4, Chapter 2 of Division 3 of the Harbor and Navigation Code (commencing at Section 500 thereof).

D. The provisions of this Section shall not be applicable to the water areas of the nearshore ocean area included within the harbor district of the City. (Ord. C-5625 § 6 (part), 1980: prior code § 7231.4)

16.12.161 Temporary mooring.

No person shall moor or tie a vessel in a marked and posted temporary vessel mooring area which is designated on a wharf, pier, mooring, gangway or dock for longer than the specified time limit for vessel mooring determined by the City Manager and approved by the City Council and set forth by signs and markings which the City has placed and maintained or caused to be placed and maintained and which give notice of the time limit for temporary mooring. (Ord. C-7043 § 8 (part), 1992)

16.12.162 Temporary mooring areas.

Temporary mooring areas for vessels shall be those wharfs, piers, moorings, gangways or docks within the near shore ocean areas owned by the City that are posted and marked for temporary vessel mooring as follows:

A. South Shore launch ramp docks, thirty (30) minutes. (ORD-22-0020 § 10, 2022; Ord. C-7043 § 8 (part), 1992)

16.12.170 Mooring or anchoring—Pacific Ocean.

No person shall anchor, moor, tie or otherwise keep or maintain any vessel, raft, barge or float within the waters of the Pacific Ocean outside of the near shore ocean area and within the limits of the City without a permit issued by the United States Coast Guard Captain of the Port of Los Angeles—Long Beach. (Ord. C-5625 § 6 (part), 1980: prior code § 7231.5)

16.12.180 Swimming and diving.

No person shall dive, plunge or otherwise enter or swim in any portion of the near shore ocean area outside the protected ocean swimming area. The provisions of this Section shall not be applicable to water areas of the near shore ocean area within the harbor district of the City or to City employees performing an official duty. (Ord. C-5625 § 6 (part), 1980: prior code § 7231.6)

16.12.190 Surfboards or paddleboards.

No person shall use or manipulate any surfboard, paddleboard, skimmer, sailboard, sit-on-top kayak, parasail board, kite surfboard or bellyboard in the surf along the beaches of the protected ocean swimming area in a reckless or negligent manner so as to endanger the life, limb, or property of any person. No person shall swim, or use or manipulate any surfboard, paddleboard, skimmer, sailboard, sit-on-top kayak, parasail device, kite surfboard or bellyboard within five hundred (500) yards of the ocean entrance to Alamitos Bay. (Ord. C-7926 § 2, 2004: Ord. C-5625 § 6 (part), 1980: prior code § 7231.7)

16.12.200 Climbing on lifeguard stations and/or towers.

No person shall climb or cause another person to climb on any lifeguard station, tower or ladder on the beaches of a municipal pier adjacent to the protected ocean swimming area. The provisions of this Section do not apply to City employees performing an official duty. (Ord. C-5625 § 6 (part), 1980: prior code § 7231.8)

16.12.210 Dangerous objects.

No person shall throw, deposit or leave or cause to be thrown, deposited or left any glass, bottle, tin can, aluminum can, nail, rubbish or other dangerous object upon the beaches of the protected ocean swimming area, that part of the Pacific Ocean within the limits of the City or such other place where such material may be washed onto the beaches of the protected ocean swimming area. (Ord. C-5625 § 6 (part), 1980: prior code § 7231.9)

16.12.220 False distress calls.

No person shall wilfully give or sound a false call for aid or rescue from the surf or waters of the near shore ocean area. (Ord. C-5625 § 6, (part), 1980: prior code § 7231.10)

16.12.230 Defacing public property.

Within the near shore ocean area and on the shore and beach areas adjacent thereto no person shall destroy, damage, disturb, deface or interfere with any buoy, float, life preserver, sign, notice, bulkhead, retaining wall, landing structure or any

other property installed and maintained by or under permit from the Director or any proper governmental authority. (Ord. C-5625 § 6 (part), 1980: prior code § 7231.11)

16.12.240 Unseaworthy vessels.

No person shall moor, anchor or allow to remain within the near shore ocean area or upon the beaches adjacent thereto any vessel of any kind whatsoever which is unseaworthy, dilapidated or in a badly deteriorated condition, or which is likely to sink and damage docks, wharves, floats or other vessels or become a menace to navigation. Any vessel in such condition is declared to be a public nuisance and shall be subject to removal and sale in accordance with the provisions of Section 16.08.710. (Ord. C-5625 § 6 (part), 1980: prior code § 7231.12)

16.12.250 Aircraft.

No person shall land on, take off from, or operate any aircraft on the waters of the near shore ocean area. (Ord. C-5625 § 6 (part), 1980: prior code § 7231.13)

16.12.260 Sanitation.

No person shall throw, discharge, deposit or leave any refuse, sewage, oil or water matter of any description upon or into the waters of the near shore ocean area, and no person shall discharge or deposit material of any kind on the banks, walls, sidewalks or beaches that border the near shore ocean area where such material may be washed into the waters of the near shore ocean area by tides, stormwaters or otherwise. Any person that intentionally or negligently causes or permits any of said substances to be deposited or discharged into the waters of or upon a bank, sidewalk, seawall, wharf, wharf road, street leading to a wharf, float, pier, harbor structure or beach of the near shore ocean area shall be civilly liable to the City for all actual damages in addition to the reasonable costs actually incurred in the cleaning or abating activities. (Ord. C-5625 § 6 (part), 1980: prior code § 7231.14)

16.12.265 Penalty.

Violation of any provision of Sections 16.12.161 and 16.12.162 is an infraction punishable by a fine not to exceed one hundred dollars ($100.00). (Ord. C-7043 8 (part), 1992)

ARTICLE III. SOUTH SHORE SMALL BOAT LAUNCH RAMP, GOLDEN SHORE MARINE BIOLOGICAL RESERVE AND CATALINA LANDING*

16.12.270 Parking lot areas.

A. No person shall park a motor vehicle in the small boat launching ramp parking lot at South Shore unless such vehicle is towing a boat trailer or is carrying a boat. The provisions of this subsection do not apply to a person participating in an organized event under a permit issued by the Marine Bureau.

B. No person shall park in either South Shore small boat launching ramp or Catalina Landing or use either of the small boat launching ramp or Catalina Landing facilities except upon payment of a parking fee as prescribed in regulations enacted pursuant to Section 16.08.970. The provisions of this subsection do not apply to a person participating in an organized event under a permit issued by the Marine Bureau.

C. No person shall discharge waste material from, sleep in, or store a trailer, camper or other vehicle in the small boat launching ramp and Catalina Landing parking lots.

D. The launching ramp and parking lots of either South Shore or Catalina Landing shall be used in accordance with regulations enacted pursuant to Section 16.08.970 and, where applicable, in accordance with the terms and conditions of permits issued by the Marine Bureau. (ORD-22-0020 § 11, 2022; Ord. C-5956 § 24, 1983; Ord. C-5625 § 6 (part), 1980: prior code § 7232)

***Editor's note**—ORD-22-0020 § 7, 2022, amended the title of Art. III to read as herein set out. The former Art. III was entitled "Golden Shore Small Boat Launching Basin and Catalina Landing".

16.12.280 Prohibited Acts.

No person shall:

A. Operate a boat within the Golden Shore Marine Biological Reserve, South Shore Small Boat Launch or Catalina Landing at a speed in excess of five (5) miles per hour.

B. Tow any object, except a disabled vessel, or trail any line within the Golden Shore Marine Biological Reserve or Catalina Landing.

C. Fish or swim within the South Shore Small Boat Launch Ramp, Golden Shore Marine Biological Reserve or Catalina Landing.

D. Berth a vessel at the South Shore Small Boat Launch Ramp, except for purposes of loading and unloading for periods not to exceed one-half (1/2) hour respectively.

E. Leave vessels, trailers or vehicles unattended on the South Shore small boat launch ramp or South Shore small boat launch ramp docks. (ORD-22-0020 § 12, 2022; Ord. C-6252 § 2, 1986: Ord. C-5956 § 25, 1983; Ord. C-5625 § 6 (part), 1980: prior code § 7232.1)

ARTICLE IV. CLAREMONT AVENUE LAUNCHING RAMP

16.12.290 Launching fees.

No person shall use the Claremont Avenue launching ramp without first paying a launching fee as prescribed in regulations enacted under Sec-

tion 16.08.970. (Ord. C-5625 § 6 (part), 1980: prior code § 7233)

16.12.300 Prohibited acts.

Within the Claremont Avenue launching ramp area, no person shall:

A. Park any motor vehicle unless the vehicle is towing a boat trailer or is carrying a boat;

B. Discharge waste material from, sleep, cook, or store any house trailer, camper or motor home;

C. Store any boat trailer on the surfaced portion of the launching ramp. Boat trailers may be temporarily stored on sand areas of the beach in the near vicinity of the surfaced portions of the launching ramp area;

D. Use the launching ramp facilities except in accordance with rules and regulations promulgated by the Director of the Marine Department and approved by the City Council. (Ord. C-5625 § 6 (part), 1980: prior code § 7233.1)

CHAPTER 16.16 PARKS AND BEACHES*

16.16.010 Prohibited acts.

No person shall do any of the acts hereafter enumerated within the limits of any public park, public beach, beach area parking lot, bicycle path, public building or enclosure, or public amphitheater or plaza:

A. Lead or turn loose any animal. Except on bicycle paths, public beaches or public school grounds, this Subsection shall not apply to dogs when led by a leash no more than eight feet (8') in length;

B. Cut, break, injure, deface, remove, or disturb any tree, shrub, plant, flower, fence, monument, or other structure, or store personal belongings in areas designated by the Director of Parks, Recreation and Marine. The Director of Parks, Recreation and Marine is authorized to place and maintain or cause to be placed and maintained proper signs designating the areas where such storage is prohibited;

C. Swim, bathe, wade in, or pollute any water fountain, pond, lake, or stream except in those places designated by the Director of Parks, Recreation and Marine for that purpose. The Director of Parks, Recreation and Marine is authorized to place and maintain or cause to be placed and maintained proper signs designating the prohibited activities;

D. Make or kindle any fire except in a permanent or portable enclosure installed or maintained by the City for that purpose;

E. Camp, except in areas designated by the Director of Parks, Recreation and Marine for that purpose. The Director of Parks, Recreation and Marine is authorized to place or maintain or cause to be placed and maintained proper signs designating permitted camping areas. As used in this Section, "camping" means residing in or using a park or beach for living accommodation purposes, as exemplified by remaining for prolonged or repetitious periods of time not associated with ordinary recreational use of a park or beach with one's personal possessions (including, but not limited to, clothing, sleeping bags, bedrolls, blankets, sheets, luggage, backpacks, kitchen utensils, cookware, and similar material), sleeping or making preparations to sleep, storing personal belongings as above defined, regularly cooking or consuming meals, or living in a parked vehicle. These activities constitute camping when it reasonably appears, in light of all the circumstances, that a person(s) is using a park or beach as a living accommodation regardless of their intent or the nature of any other activities in which they might also be engaging;

F. Distribute, post or display any handbills, notices, papers, or any other advertising matter of any description, or offer or solicit for sale advertising or real estate;

G. Play or engage in any game except in those places designated for that purpose;

H. Throw or deposit any bottles, tin cans, broken glass, papers, clothes, iron or any rubbish or refuse except in the receptacles furnished for that purpose;

*Cross reference—For provisions on the Director of Recreation, see the City Charter.

I. Play any musical instrument or any electrically amplified music in a manner which will disturb the peace and quiet of any neighborhood or person;

J. Ride upon or in any paddleboard, bellyboard, raft, canoe, float, or inflatable or rigid watercraft of any type upon any body of water, either temporary or permanent, within any public park without first having obtained a permit from the Director of Parks, Recreation and Marine;

K. Remain or stay, or store personal belongings, between the hours of ten o'clock (10:00) p.m. and one (1) hour before sunrise at any public park, public beach, public building or enclosure or public amphitheater or plaza. However, the Director of Parks, Recreation and Marine, in consultation with the Chief of Police, is authorized to alter hours of closing temporarily at any public park, public beach, beach and marina parking lot, public building or enclosure, or public amphitheater or plaza in the interest of public safety, health, or welfare, and no person shall remain or stay while any of the foregoing facilities are closed by the Director. This Subsection shall not apply to any person attending an activity, program, concession or special event, or the parking of a vehicle overnight, for which a City permit has been issued;

L. Leave any kite board control line laying on the beach when the parasail kite is not in use. Control lines should be secured in such a manner so as not to create an obstruction for any City equipment or vehicles, or for patrons of the beach;

M. Flying a kite within one hundred feet (100') of the bike path;

N. Allowing kite control lines to cross the bike path while flying a kite;

O. Notwithstanding the provisions of Subsection 16.16.010.K:

1. The beach from the easterly portion of Belmont Pier to the westerly portion of the Belmont pool building shall be open between the hours of ten o'clock (10:00) p.m. and twelve o'clock (12:00) midnight.

2. Walking, jogging, or fishing (by members of the public having on their possession a valid California fishing license) shall be allowed on the wet sand of all beaches between the hours of ten o'clock (10:00) p.m. and twelve o'clock (12:00) midnight. "Wet sand" shall be defined, for the purpose of this Section, as that portion of the beach that is wet as a result of the wash of the waves or tidal action. Individuals may go to or come from the wet sand, for one of the purposes allowed, between the hours of ten o'clock (10:00) p.m. and twelve o'clock (12:00) midnight by the most direct route available at any given location.

P. On the Fourth of July, beaches and beach parking lots shall be closed from twelve o'clock (12:00) midnight to one (1) hour before sunrise;

Q. For holidays not enumerated in this Section or for special events for which a permit has been issued pursuant to Chapter 5.60 of this Code, the Director of Parks, Recreation and Marine, in consultation with the Chief of Police, may adjust the hours of operation of beach or beach parking lots so that they may be used until twelve o'clock (12:00) midnight on such occasions;

R. Smoking shall be banned on City beaches, the beach bike path and City beach launch ramps as more specifically set forth in Chapter 8.68 of this Code.

S. Entry Outside Posted Hours Prohibited. The Director of Parks shall be authorized to designate the hours of operation or the business hours for any fenced, gated, or otherwise enclosed grounds, area, structure or facility of the Department of Parks, Recreation and Marine by providing reasonable notice to the public by signs and/or posting. Except during the posted hours of operation or business hours, no person shall enter, occupy, remain, or otherwise be within any fenced, gated, or otherwise enclosed grounds, area, structure or facility without prior authorization from the Director of Parks, Recreation, and Marine or the Director's designee. The hours of operation or business hours shall be posted at the public entry of each fenced, gated, or otherwise enclosed grounds, area, structure or facility subject to this Subsection. The provisions of this Section shall not apply to a peace officer, security officer, emergency personnel or employee of the Department of Parks, Recreation and Marine acting in an

official capacity. (ORD-07-0027 § 1, 2007; ORD-07-0023 § 1, 2007; Ord. 05-0015 § 2, 2005; Ord. C-7926 § 3, 2004; Ord. C-7211 § 3, 1994: Ord. C-7118 § 3, 1993: Ord. C-7043 § 5 (part), 1992: Ord. C-6694 § 1, 1990; Ord. C-6637 § 1, 1989; Ord. C-6445 § 1, 1987; Ord. C-6132 § 1, 1985; Ord. C-5956 §§ 26—31, 1983; Ord. C-5624 § 1 (part), 1980: prior code § 7300)

16.16.015 Designated skatepark.

A. "Designated Skatepark" means an area within a park or other public property which is posted as a skatepark permitting one (1) or more skate activities, and which is reserved exclusively, either during all hours of operation, or during posted times, for one (1) or more skate activities.

B. "Director" means the Director of Parks, Recreation and Marine or his designee.

C. "Skate activity" means the use of any non-motorized recreational apparatus with wheels.

D. "Skater" means any person participating in a skate activity.

E. The Director is authorized to temporarily designate an area on any public property as a designated skatepark.

F. Skaters must wear a safety helmet, elbow pads and kneepads at all times while participating in a skate activity within a designated skatepark.

G. No person, other than a skater as authorized and posted pursuant to Section 16.16.017, is permitted within a designated skatepark, except that spectators may sit or stand in areas designated for that purpose.

H. No organized activity, event or competition shall take place in any designated skatepark without the written permission of the Director.

I. No portion of any designated skatepark may be modified, altered, or added to in any manner without the written permission of the Director.

J. Skate activities are limited within the designated skatepark to surfaces, equipment or obstacles installed for that purpose. No skate activity is permitted on walls or other boundary structures or seating areas immediately surrounding or adjoining the designated skatepark.

K. Children under the age of fourteen (14) are not permitted to use skateparks without adult supervision.

L. All non-motorized recreational apparatus with wheels shall be in good working order, properly equipped and in a condition which does not cause mud or dirt to be deposited in the skatepark.

M. The Director is authorized to post additional rules he determines are necessary for the safe operation of the designated skatepark.

A violation of this Section shall be an infraction punishable by a fine of not more than one hundred dollars ($100.00) for a first offense and not more than two hundred dollars ($200.00) for a second offense within a twelve (12) month period. Three (3) or more violations of this Section within a twelve (12) month period may be charged as a misdemeanor. (ORD-12-0005 § 1, 2012; Ord. C-7946 §§ 2, 3, 2004; Ord. C-7701 § 1, 2000)

16.16.017 Non-motorized recreational apparatus with wheels in designated skateparks.

A. "Bike Rider" means a person using a non-motorized recreational apparatus with wheels in a designated skatepark.

B. "Non-motorized recreational apparatus with wheels" means any type of recreational or sports apparatus without a motor that is propelled by human force and moves on wheels, such as a bicycle, skateboard, scooter, in-line skates, etc.

C. "Director" means the Director of Parks, Recreation and Marine or his designee.

D. All non-motorized recreational apparatus with wheels shall be in good working order, properly equipped and in a condition which does not cause mud or dirt to be deposited in the skatepark.

E. On a trial basis, the utilization of non-motorized recreational apparatus with wheels is permitted in all City owned skateparks during hours determined by the Director.

F. Bike Riders must wear a safety helmet, elbow pads and kneepads at all times while riding within the skatepark.

G. The Director is authorized to post additional rules he determines are necessary for the safe operation of the designated skatepark.

H. The Director shall have the discretion to terminate the pilot program prior to its scheduled conclusion.

I. This Section shall cease to be of any effect on February 28, 2013, unless extended.

A violation of this Section shall be an infraction punishable by a fine of not more than one hundred dollars ($100.00) for a first offense and not more than two hundred dollars ($200.00) for a second offense within a twelve (12) month period. Three (3) or more violations of this Section within a twelve (12) month period may be charged as a misdemeanor. (ORD-12-0005 § 2, 2012; Ord. C-7946 § 4, 2004)

16.16.020 Picnic permits.

No event, picnic, celebration, parade, ceremony, service, or exercise involving more than twenty-five (25) persons may be conducted or held in or upon any public park, public building or place under the jurisdiction of the Recreation Commission without first obtaining a permit to do so from the Recreation Department or upon the granted tide and submerged lands without first obtaining a permit to do so from the Manager of the Marine Bureau. (Ord. C-5956 § 32, 1983: Ord. C-5624 § 1 (part), 1980: prior code § 7300.1)

16.16.030 Climbing over bluff or cliff.

No person shall climb over, upon, across, up or down any bluff or cliff bordering the Pacific Ocean in the City at any place other than a stairway or passageway maintained for the purpose of reaching the beach or ocean; provided, however, that this Section shall have no application to the owner, his agent, or licensee of property abutting upon the shore of the Pacific Ocean upon which there is any bluff or cliff. (Ord. C-5624 § 1 (part), 1980: prior code § 7300.2)

16.16.040 Sand removal.

No person shall remove and transport any sand from a public beach or other public place. (Ord. C-5624 § 1 (part), 1980: prior code § 7300.3)

16.16.050 Nudity.

No person shall appear, bathe, sunbathe, walk, or be in any public park, playground, beach, or the waters adjacent thereto in such a manner that the genitals, vulva, pubis, pubic symphysis, pubic hair, buttocks, natal cleft, perineum, anus, anal region, or pubic hair region of any person, or any portion of the breast at or below the upper edge of the areola thereof of any female person, is exposed to public view or is not covered by an opaque covering. This Section shall not apply to children under the age of ten (10) years. (Ord. C-5624 § 1 (part), 1980: prior code § 7300.4)

16.16.060 Sale or solicitation permit.

A. With the exception of vending as permitted by Chapter 5.73 of this Code, no person shall offer, provide, sell, rent or solicit for sale or rent any goods, equipment, merchandise, food, service or instruction on, at or from any public beach, marina, park, street or within any public place, facility, building or structure situated upon the tide and submerged lands granted to the City by the State pursuant to Chapter 676, Statutes Of 1911, Chapter 102, Statutes Of 1925, Chapter 158, Statutes of 1935, as interpreted by Chapter 29, Statutes of 1956, first extraordinary session, and Chapter 138, Statutes of 1964, first extraordinary session, or situated at or adjacent to Colorado Lagoon, Marine Stadium East and Marine Stadium West without first obtaining a permit to do so from the Manager of the Marine Bureau.

B. With the exception of vending as permitted by Chapter 5.73 of this Code, no person shall offer, provide, sell, rent or solicit for sale or rent any goods, equipment, merchandise, food, service or instruction in, at or from any public park or place under the jurisdiction of the Recreation Commission without first obtaining a permit to do so from the Director of the Department of Parks and Recreation. (ORD-24-0002 § 17, 2024; Ord. C-6118 § 1, 1984: Ord. C-5956 § 33, 1983: Ord. C-5624 § 1 (part), 1980: prior code § 7300.5)

16.16.070 Hang gliding.

No person shall launch or operate manned gliders, including, but not limited to, those now commonly referred to as "hang gliders", from the top or face of any bluff or cliff bordering the

Pacific Ocean in the City, without first obtaining a permit from the Manager of the Marine Bureau designating the time, the place, the operator and such conditions as may be required to assure public safety. The Manager of the Marine Bureau may refuse to issue any such permit if in his opinion to do so would cause undue danger or inconvenience to persons using the public beach or other property, or would require an undue expenditure of public funds to protect users of the public beach or other property. (Ord. C-5956 § 34, 1983: Ord. C-5624 § 1 (part), 1980: prior code § 7300.6)

16.16.080 Park rangers.

A. Those employees of the City holding the classified position of Park Ranger and regularly employed as such and having the primary duty of protection of park property and preservation of peace therein are designated as peace officers for purposes of Section 12031 of the Penal Code while engaged in the performance of the official duties of the classified position of Park Ranger.

B. Nothing in this Section is intended to or shall operate to change or shall have the effect of changing the status of employees of the City holding the classified position of Park Ranger from public or miscellaneous officers or employees to individual peace officers or safety members or classes of peace officers or safety members for purposes of retirement, workers' compensation or similar injury or death benefits or any other employee benefit or benefits to which the employees would not have been entitled as a public employee prior to the adoption of this Section. (Ord. C-5499 § 1, 1979: Ord. C-5244 § 1, 1976: prior code § 7510.12)

16.16.090 Glass on beaches and bicycle paths.

No person shall possess any glass container, cup, jar, bottle or any other similar glassware on a public beach or bicycle path. (Ord. C-7043 § 5 (part), 1992: Ord. C-5898 § 1, 1982)

16.16.100 Prohibition against overnight parking in Shoreline Park.

Except as provided in Chapter 16.54, no person shall park any vehicle, bus, camper, house car, trailer coach or any other vehicle adopted for human habitation or occupancy in Shoreline Park between the hours of twelve o'clock (12:00) midnight and five o'clock (5:00) a.m. The City Manager shall place and maintain or cause to be placed and maintained signs giving notice of the parking restrictions provided for in this Section. (Ord. C-6001 § 2, 1983)

16.16.110 Restrictions on use of park above main library.

The park and grounds above the main library shall be closed for public use between the hours of six o'clock (6:00) p.m. and six o'clock (6:00) a.m.

Except for authorized public employees, no person shall use, occupy or enter the park and grounds above the main library between the hours of six o'clock (6:00) p.m. and six o'clock (6:00) a.m.

The City shall place and maintain appropriate signs giving notice of this restricted public use of this park.

A violation of this Section shall be an infraction subject to a maximum fine of one hundred fifty dollars ($150.00) for the first offense and two hundred dollars ($200.00) for the second offense. A third violation within any twelve (12) month period shall be deemed a misdemeanor. (Ord. C-6396 § 1, 1987)

16.16.120 El Dorado Park West—Acts prohibited.

A. No person shall fish or bring to or have possession of any fishing equipment at the lake off Studebaker Road in El Dorado Park West. "Fishing equipment" includes hook, line, sinker, fishing rod, net, or any other equipment or item used to catch fish. Fishing equipment brought to or possessed at the lake in El Dorado Park West may be confiscated by a peace officer or Park Ranger.

The City Manager or his designee is authorized to place and maintain signs giving notice hereof.

B. A violation of this Section shall be an infraction punishable by a fine of not more than one hundred dollars ($100.00) for a first offense

and not more than two hundred dollars ($200.00) for a second offense within a twelve (12) month period. Three (3) or more violations of this Section within a twelve (12) month period may be charged as a misdemeanor. (Ord. C-6707 § 1, 1990)

16.16.130 Biological reserve—Acts prohibited.

No person, except employees of the City in the performance of their duties, shall do any of the following acts in any biological reserve located within the City of Long Beach:

A. Cut, break, injure, deface, remove or disturb any plant, or capture, trap, injure, remove or kill any animal, provided, however that: (1) with the permission of the City's Director of Parks, Recreation and Marine, volunteers may engage in maintenance and study activities consistent with the protection and propagation of native species of plants and animals in self-sustaining habitats, with the education of the public about native plants, animals and their habitats, and with the appreciation and viewing of native plants, animals and their habitats; and (2) with a permit from the City's office of special events, filmmakers may use a portion of a biological reserve for filming as long as they do not disturb plants or wildlife.

B. Swim, bathe or wade, or sail, paddle, or row any boat, canoe, raft, paddleboard, bellyboard, surfboard, or inflatable or rigid watercraft, or fish, spear, or net any sea creature, or operate a model boat in water areas, except that these activities may be performed under the supervision of an employee of the Department of Parks, Recreation and Marine.

C. Plant, water, or nourish any plant, or release any animal, or feed or provide water for any animal except with the permission of the Director of Parks, Recreation and Marine.

D. Lead, walk, or turn loose any animal. This Subsection shall not apply to dogs when led by a leash no more than eight feet (8') long if there is a sign posted that permits this activity.

E. Make or kindle any fire except under the supervision of the Fire Department.

F. Walk off established trails.

G. Ride or drive a bicycle, skateboard, roller skates, in-line skates, scooters, razors, or any other wheeled vehicles, motorized or nonmotorized, on or off trails, unless there is a sign posted to allow such activities.

H. Enter, except during the hours posted for public access.

I. Camp or engage in any activity prohibited in Section 16.16.010. (Ord. C-7879 § 1, 2003)

16.16.140 Park Playgrounds—Adults not accompanying children ages 12 and under prohibited.

A. No adult shall be present on any City park playground unless the adult is accompanying a child or children age 12 and under, lawfully under their custody or control, including a parent or guardian, babysitter, caretaker or other designee of a parent or guardian having sole or joint supervisory responsibility over the child, using such playground.

B. "Park playground" or "playground" for purposes of this Section means any park area which has been designated by the Department of Parks, Recreation and Marine Director, or designee, as a "Kids Zone", and on which clear and visible signage has been posted providing notice of such "Kids Zone" status and the prohibition in Subsection A. (ORD-22-0031 § 1, 2022)

CHAPTER 16.20 EL DORADO PARK EAST

16.20.010 Definitions.

The words set forth in this Section shall have the following meaning when used in this Chapter:

A. "El Dorado Park East" means that area of the City bounded on the north by commonly shared boundaries of the Community Gardens, Police Pistol Range and Navy Hospital, on the east by the San Gabriel (605) Freeway, on the south by the confluence of the San Gabriel River and Coyote Creek, and on the west by the San Gabriel River Control Channel.

B. The terms "motorized bicycle" and "motor vehicle" have the same meaning as the definitions

therefor set forth in Vehicle Code Sections 406 and 415, respectively. (Ord. C-5475 § 1 (part), 1979: prior code § 7320)

16.20.020 Entry fee authorized.

The Recreation Commission is authorized to establish a fee or fees for each motor vehicle and motorized bicycle entering El Dorado Park East. The Commission shall establish the fee or fees at such amount or amounts as will enable the City to recover its costs of operation, maintenance, management, supervision, development and promotion of use by the public of El Dorado Park East. (Ord. C-5475 § 1 (part), 1979: prior code § 7320.1)

16.20.030 Payment of fee required.

No person shall drive a motor vehicle or motorized bicycle into, or otherwise cause a motor vehicle or motorized bicycle to enter, El Dorado Park East without payment of the entry fee therefor established by the Recreation Commission. (Ord. C-5475 § 1 (part), 1979: prior code § 7320.2)

16.20.040 Exemptions.

The following motor vehicles and motorized bicycles, and the operators thereof, shall be exempt from the provisions of this Chapter:

A. Such vehicles owned by the United States, by the State or by any political subdivision thereof, or by any municipality duly organized under the Constitution or laws of the State;

B. Such vehicles owned by a public utility while used in the conduct of its business;

C. Such vehicles used in conjunction with the supervision, management, promotion, or conduct of public recreation activities of the City, provided the operator thereof is in possession of and displays a vehicle entry pass issued by the Director of Recreation or his authorized representative. (Ord. C-5475 § 1 (part), 1979: prior code § 7320.3)

16.20.050 Special regulations—Prohibition against parking except in designated areas.

No person shall park, stand or stop any vehicle upon any road in El Dorado Park East except within parking spaces designated by lines or marks on the curbs or pavement. The Department of Parks and Recreation shall place and maintain, or cause to be placed and maintained, signs and markings giving notice of the parking restrictions provided for in this Section. (Ord. C-6350 § 1 (part), 1987)

16.20.060 Special regulations—Prohibition against vehicles of excessive length.

A. Unless directed by an authorized City employee, no person shall park, stand, or stop any bus, recreational vehicle or any other vehicle of excessive length within El Dorado Park East in such a manner as to occupy more than one (1) parking space or as to constitute an obstruction of the traffic lanes. For the purpose of this Section the definition of a "bus" shall be that set forth in California Vehicle Code Section 223.

B. All vehicles of such excessive length shall park in the areas designated for such vehicles within El Dorado Park East so as not to constitute an obstruction of the traffic lanes. The Department of Parks and Recreation shall place and maintain, or cause to be placed and maintained, signs giving notice of the parking restrictions provided for in this Section. (Ord. C-6350 § 1 (part), 1987)

16.20.070 Special regulations—Prohibitions against parking on grass areas.

No person shall drive, park, stand or stop any vehicle upon any grass area in El Dorado Park East unless directed to do so by an authorized City employee or in a designated area. The Department of Parks and Recreation shall place and maintain, or cause to be placed and maintained, signs giving notice of any grass area where parking is permitted. (Ord. C-6350 § 1 (part), 1987)

16.20.080 Special regulations—One-way streets.

A. No person shall drive or operate any vehicles on the streets of El Dorado Park East in a direction other than designated for one-way traffic. The Department of Parks and Recreation shall place and maintain, or cause to be placed or maintained, signs giving notice of the parking restrictions provided for in this Section and giving notice of the appropriate one-way traffic direction.

B. Certain areas of El Dorado Park East shall be designated for two-way traffic flow as an exception to Subsection 16.20.080.A. Signs indicating the direction of lawful traffic movement in these areas shall be placed by the Department of Parks, Recreation and Marine as follows:

1. From the Nature Center parking lot to the intersection north of the Spring Street tunnel;

2. From the intersection south of the Wardlow tunnel to the intersection north of the same;

3. From the intersection north of Fire Station Five north to the ranger station;

4. From the intersection north of the fire station to a point three hundred feet (300') north of the intersection north of Wardlow tunnel;

5. From the intersection south of the Wardlow tunnel to the intersection north of the westbound Spring Street ingress/egress to the park;

6. From a point three hundred feet (300') north of the intersection north of the Wardlow tunnel to the north boundary of El Dorado Park East;

7. From the intersection south of Wardlow tunnel to the intersection of the eastbound entrance/exit of El Dorado Park East south of Wardlow Road. (Ord. C-7515 § 1, 1997; Ord. C-7178 § 3, 1994; Ord. C-6350 § 1 (part), 1987)

16.20.090 Penalty.

Violation of or failure to comply with any special regulations in this Chapter constitutes an infraction as provided in Section 40000.1 of the Vehicle Code and penalties for such infractions shall be as set forth in Article I, Chapter I, Division 18 of the Vehicle Code. (Ord. C-6350 § 1 (part), 1987)

CHAPTER 16.22 EL DORADO EAST NATURE CENTER

16.22.010 Fishing prohibited.

No person shall fish or bring onto or have possession of any fishing equipment on the grounds of the El Dorado East Nature Center. "Fishing equipment" includes hook, line, sinker, fishing rod, net or any other equipment used to catch fish. Fishing equipment illegally brought onto the grounds of El Dorado East Nature Center may be confiscated by an authorized Police Officer or Park Ranger.

The City Manager is authorized to place and maintain signs giving notice of the contents of this Chapter. (Ord. C-6557 § 1 (part), 1989)

16.22.020 Penalty.

A violation of this Chapter shall be an infraction punishable by a fine of not more than one hundred dollars ($100.00) for a first offense and not more than two hundred dollars ($200.00) for a second offense within a twelve (12) month period. Three (3) or more violations of this Chapter within a twelve (12) month period may be charged as a misdemeanor. (Ord. C-6557 § 1 (part), 1989)

CHAPTER 16.24 PARK CLUBHOUSE

16.24.010 Definitions.

A. "Permit" means the written, typewritten or printed permission issued to a permittee in accordance with the provisions of this Chapter.

B. "Permittee" means the person who is granted a permit in accordance with the provisions of this Chapter.

C. "Recreation Park Clubhouse" means the clubhouse located in Recreation Park at 5000 East Anaheim Street. (Prior code § 7490.5)

16.24.020 Supervision.

The Director of Parks, subject to the direction and control of the City Manager, is vested with the authority, and it shall be his duty, to supervise and manage the Recreation Park Clubhouse, and to issue permits for the use thereof, in accordance with the subject to the terms, conditions, limitations and restrictions contained in this Chapter. (Prior code § 7490.10)

16.24.030 Permit—Required.

No person shall use the social hall of the Recreation Park Clubhouse without first having obtained a permit in writing to do so from the Director of Parks. The permit shall be issued on a printed form supplied by the Director of Parks and shall contain the information necessary to determine the facilities, arrangements and special services necessary for any event scheduled at the clubhouse. The permit shall be signed by the Director of Parks and the permittee. (Prior code § 7490.15)

16.24.040 Services performed by City.

No service shall be furnished to permittee other than the normal facilities available at the clubhouse. Such facilities shall include lights, public address system and janitor service, including setting up and removing City-owned tables and chairs. (Prior code § 7490.20)

16.24.050 Permit—Fee—Designated.

Permits for the use of clubhouse facilities, except when issued without charge as elsewhere

provided for in this Chapter, shall be issued only upon payment of a fee or fees as determined by the City Council by resolution. (ORD-10-0014, § 22, 2010; Prior code § 7490.25)

16.24.060 Afternoon and evening periods designated.

The words "afternoon" and "evening" shall be deemed to apply, respectively, to periods of occupancy between the hours of twelve o'clock (12:00 p.m.) noon to six o'clock (6:00) p.m. and six o'clock (6:00) p.m. to midnight. (Prior code § 7490.30)

16.24.070 Permit—Fee—Exemption.

The Director of Parks, with the approval of the City Manager, may issue a permit for the use of Recreation Park Clubhouse, or any part thereof, without charge to any reputable person or organization when the use does not conflict with other reservations for which a rental is paid, and when, in the opinion of the Director of Parks, the proposed use is purely patriotic or civic in nature or to meet some public necessity. The permit shall be subject to the following terms and conditions:

A. The function must be of City-wide interest in scope and shall not be for the purpose of furthering the interests of any individual, organization or group;

B. No admission charge or collection shall be made. (Prior code § 7490.35)

16.24.080 Permit—Cancellation.

The permittee may request the cancellation of the permit at any time prior to the reserved date. The Director of Parks may cancel the permit for any cause beyond the control of either party thereto. If the permit is canceled by permittee at least twenty-four (24) hours prior to the reserved date, or if the permit is canceled by the Director of Parks, the permittee shall be entitled to a refund of the rental paid. (Prior code § 749O.40)

16.24.090 Use regulations.

A. The permittee shall comply with all rules and regulations for the use of the Recreation Park Clubhouse as adopted and issued from time to time by the City Manager or the Director of Parks and shall comply with all laws and ordinances affecting the use and occupancy of the clubhouse.

B. No oral agreement for the use of the Recreation Park Clubhouse, or any part or facility thereof, shall be binding upon the City. The permit, when issued and accepted, shall constitute the contract between the City and the permittee.

C. By the acceptance of a permit, as provided in this Chapter, permittee thereby covenants and agrees to save and keep the City, its officers and employees, free and harmless from any and all liability for loss, injury or damage to any person, persons or property, including damages to the property of the City, which may be sustained or suffered by or imposed upon the City, its officers or employees by reason of the use and occupancy of the Recreation Park Clubhouse by the permittee or by any person or persons participating in or attending the function for which the permit is issued.

D. Permittee shall promptly pay any and all federal, State, County and City taxes which may be imposed upon the permittee by reason of the use and occupancy of the Recreation Park Clubhouse. (Prior code § 7490.45)

CHAPTER 16.28 MUNICIPAL GOLF COURSES

16.28.010 Definitions.

"Municipal golf courses", when used in this Chapter, means the golf courses in Recreation Park, at Skylinks, in El Dorado Park and such other golf courses which may be operated by the City. (Prior code § 7480)

16.28.020 Fees.

The fees for use of the municipal golf courses shall be established by resolution of the City Council. (Ord. C-5677 § 1, 1980: Ord. C-5602 § 1, 1980: Ord. C-5515 § 1979: Ord. C-5400 § 1, 1978: Ord. C-53l4 § 1, 1977: prior code § 7480.1)

16.28.030 Fee exemptions authorized.

A. Notwithstanding any provision contained in this Chapter, the City Manager shall have the

authority to issue annual passes waiving the payment of fees set forth in this Chapter as he may deem proper or appropriate.

B. The City Manager shall have the authority to exempt from the greens fees set forth in this Chapter, tournament participants in City-sponsored golf tournaments, official golf teams from schools of the Long Beach Unified School District, members in good standing of the Professional Golfers Association and their spouses, and others, when in his discretion such exemption is in the best interest of the successful operation of the municipal golf courses, the promotion of golf as a sport, and/or in accordance with commonly accepted policy and tradition on other publicly-owned golf courses. (Prior code § 7480.2)

16.28.040 Rules authority.

The City Manager shall have the authority to regulate the hours the municipal golf courses are open for play, to establish golf course rules and regulations, to refuse the right to play or to make reservations for play to any individual or individuals for misconduct, and to approve any golf tournaments or special events proposed to be held on the municipal golf courses. (Prior code § 7480.3)

16.28.050 Rules compliance required.

It is unlawful for any person to commence or engage in the play of golf in or upon any of the municipal golf courses without first having paid the fees prescribed in this Chapter or unless a valid pass has first been obtained and in the immediate possession of the person to whom issued, or to fail to comply with any of the rules and regulations pertaining to the use of the golf courses and to those portions of municipal clubhouses used in connection with golf activities. (Prior code § 7480.4)

16.28.060 Reservations—Registration card.

Reservations for golf course starting times shall be made in accordance with the following procedures:

A. Golfers must be registered with the Park Department in order to make reservations by telephone for a starting time on a day other than the day of play.

B. A numbered registration card will be issued to any person upon completion of application and payment of a ten dollar ($10.00) registration fee.

C. Applications for registration cards may be obtained at all golf courses, or may be secured by writing to the Long Beach Park Department, 2760 Studebaker Road, Long Beach, California 90815.

D. Registration cards for golf course reservations are valid for three (3) years from the date of issuance. (Ord. C-5443 § 1, 1978; prior code § 7480.6)

16.28.070 Reservations—Procedure.

Reservations at municipal golf courses may be made in accordance with the following procedures:

A. Reservations on the day of play may be made in person or by telephoning the golf course starter.

B. Advance reservations prior to the day of play may be made only by telephoning the golf central reservations office located at 2760 Studebaker Road, Long Beach, California 90815. Advance reservations shall be made in accordance with rules and regulations established from time to time by the City Manager. (Prior code § 7480.7)

16.28.080 Reservations—Reassignment.

Golfers from the standby list will be assigned a previously reserved starting time unless the person who made the reservation complies with the following at least fifteen (15) minutes before the reserved starting time:

A. Pay all green fees for entire party.

B. Present to starter registration card and acceptable identification.

C. Give to starter names and green fee receipts for entire party. (Prior code § 7480.8)

16.28.090 Golf Starter Ranger authority.

A. Those employees of the City holding the classified positions of Golf Starter Ranger I and Golf Starter Ranger II shall have the duty of enforcing Section 16.28.050 and are authorized, pursuant to Penal Code Section 836.5, to arrest

persons and to prepare, issue and deliver to any such arrested person written notice to appear in court and to release such person from custody upon receiving from him his written promise to appear in court for any violation of Section 16.28.050.

B. Nothing in this Section is intended, or shall operate, or be construed, to change or have the effect of changing the status of any of the Starter Rangers from a miscellaneous officer or employee to that of a peace officer or safety member within the meaning of any statute, ordinance, resolution, rule or regulation or to entitle any of the Golf Starter Rangers to any employee benefit or benefits to which the Golf Starter Ranger would not have been entitled prior to the adoption of this Section. (Ord. C-5308 § 1, 1977: prior code § 7480.9)

CHAPTER 16.32 LONG BEACH CONVENTION CENTER

16.32.010 Purpose.

The purpose of this Chapter is to set forth provisions of general applicability pertaining to the use and occupancy of the Long Beach Convention Center which is held, administered and operated by the City as a tideland asset in accordance with the tideland trust established and created and defined by the legislative grants from the State in Chapter 676, Statutes of 1911, Chapter 102, Statutes of 1925 and Chapter 158, Statutes of 1935 and the provisions of Chapter 29, Statutes of 1956, First Extraordinary Session, Chapter 138, Statutes of 1964, First Extraordinary Session. (Ord. C-5316 § 1 (part), 1977: prior code § 7410)

16.32.020 Definitions.

As used in this Chapter:

A. "City Manager" is the City Manager of the City of Long Beach.

B. "Concession" is the privilege to enter upon and use the Long Beach Convention Center, or any part thereof or facility contained therein, for the purpose of providing food, beverages, goods or services, with or without charge, to patrons, customers or invitees at the Long Beach Convention Center. The term "concession" shall not include the sale of merchandise or products from a display or exhibit which has been otherwise authorized by the Manager.

C. "Long Beach Convention Center" is the complex of buildings and structures consisting of an arena, theaters, exhibit hall, meeting rooms, parking structure, parking lots or any other area building, structure or facility on or adjacent to the site bounded by Shoreline Drive on the south and east, Ocean Boulevard on the north and the southerly prolongation of Pine Avenue on the west except for such portions of the site as are now or hereafter may be leased to others by the City.

D. "Manager" includes and means the employee of the City of Long Beach or the person, firm, or entity acting under a contract with the City of Long Beach designated to manage and operate the center.

E. "Permit" is the written permission to use or operate a business at, on or adjacent to the Long Beach Convention Center or any portion thereof issued by the Manager pursuant to this Chapter. The term "permittee" includes any individual, partnership, corporation or association to whom such a permit is issued upon written application therefor.

F. "Person" includes any individual, partnership, corporation or association. (Ord. C-5896 § 1, 1982; Ord. C-5316 § 1 (part), 1977: prior code § 7410.1)

16.32.030 Manager's duties.

The Manager shall supervise, manage and administer the operations of the Center and issue all permits for the use and occupancy thereof. (Ord. C-5896 § 2, 1982: Ord. C-5316 § 1 (part), 1977: prior code § 7410.2)

16.32.040 Permit—Required.

No person shall use, occupy, operate any concession, or engage in any business activity in, upon or adjacent to the Center without first having

obtained a permit therefor from the Manager. (Ord. C-5896 § 3, 1982: Ord. C-5316 § 1 (part), 1977: prior code § 7410.3)

16.32.050 Permit—Application.

Any person desiring to use, occupy or engage in any business activity in, on or adjacent to the Long Beach Convention Center or any portion thereof may be required to complete and file with the Manager an application prior to the issuance of any permit therefor. The application shall contain such information as the Manager may deem necessary to determine the financial responsibility of the applicant, the facilities, special requirements and arrangements required for staging and management of any event. (Ord. C-5316 § 1 part), 1977: prior code § 7410.4)

16.32.060 Rules and regulations.

The City Manager, with the approval of the City Council, shall adopt, amend or repeal administrative rules and regulations governing the use and occupancy of the Center. In the event the Manager is a person, firm, or entity acting under contract with the City of Long Beach, the City Manager, with the approval of the City Council, shall include in any such contract such provisions and limitations as may be reasonably required. Any administrative rules and regulations in force as of the commencement date of a management contract for the operation of the Center shall be suspended during the term of any such contract. Upon the termination of any such management contract, the suspended administrative rules and regulations shall be automatically reinstated. (Ord. C-5896 § 4, 1982: Ord. C-5316 § 1 (part), 1977: prior code § 7410.5)

CHAPTER 16.36 VETERANS' MEMORIAL BUILDING

16.36.010 Definitions.

A. "Veterans' association" means any association or organization composed solely of persons who served honorably in time of war as members of the United States Army, Coast Guard, Navy, Marine Corps or Air Force, or who then being citizens of the United States served honorably in time of war as members of the Armed Forces of any nation whose government was allied with the United States during such war, and which are organized for patriotic, fraternal and benevolent objects.

B. "Auxiliary organizations," within the meaning of this Chapter shall be organizations wherein the membership consists solely of mothers, wives, or direct descendents of veterans as defined in this Section.

C. "Affiliated organizations," within the meaning of this Chapter, includes such organizations as bands, drum corps, drill teams or committees composed primarily of members of veterans' or auxiliary organizations.

D. "Allied veterans' organization" means those whose membership consists of veterans of allies of the United States in any of its wars, or consists of the mothers, wives, daughters or sons of such allied veterans.

E. "Nonveteran organizations" means all groups of individuals of any nature not specifically mentioned above.

F. The use of each of the halls or offices includes the use of hallways, corridors, stairways for ingress and egress, and necessary adjacent quarters. For the purpose of this Chapter the various units in the Veterans' Memorial Building shall be identified as follows:

Lodge Hall No. 1, west room, first floor

Lodge Hall No. 2, west room, second floor

Lodge Hall No. 3, west room, third floor

Lodge Hall No. 4, east room, third floor

Auditorium

Banquet Hall

Offices:

First Floor

No. 101, southwest corner

No. 102, southeast corner

No. 103, east side

Second Floor

No. 201, southwest corner

No. 202, southeast corner

No. 203, west side

Third Floor

No. 301, southwest corner

No. 302, southeast corner

No. 303, west side

No. 304, east side

Basement

No. B-1, southwest corner

No. B-2, southeast corner

G. "Manager," as used in this Chapter, means the Manager of the Veterans' Memorial Building. (Prior code § 7470)

16.36.020 Advisory Commission.

The United Veterans' Council Building Commission, as defined in the constitution of the Long Beach United Veterans' Council, may act in an advisory capacity in the determination of policies with respect to the uses and occupancy of the building and the conditions under which occupancy shall be obtained, and may transmit its recommendations to the City Manager. (Prior code § 7471)

16.36.030 Use regulations.

A. No organization may use the Veterans' Memorial Building without first having submitted an application, in writing, to the Manager. The application shall be filed on a form prescribed and provided for such purpose by the Manager. The Manager, at his discretion, may require organizations using the building to submit, at the time and in the form prescribed, a schedule of proposed occupancy and activities, setting forth all information necessary to determine the facilities and services required. Upon approval of the application by the City Manager, use of the building may be granted in conformity with these regulations. Such approval shall be applied for and renewed annually prior to July 1st of each year.

B. Except for special meetings scheduled at other hours or times, the building shall be opened at eight o'clock (8:00) a.m., daily, except Saturdays, Sundays and holidays, and shall be closed at twelve (12:00 a.m.) midnight. In the event that no meetings are conducted at night, the Manager is authorized to close the building. The building may be opened for other purposes at such times as the City Manager may direct.

C. In each of the units mentioned in Subsection 16.36.010.F, excepting the offices, an occupancy shall be considered the period between nine o'clock (9:00) a.m. and eleven thirty o'clock (11:30) a.m. or between one o'clock (1:00) p.m. and four o'clock (4:00) p.m. or between seven o'clock (7:00) p.m. and eleven-thirty o'clock (11:30) p.m. When quarters are assigned under application for use of the facilities of the building, the occupancy shall be designated as morning, afternoon or evening. (Prior code § 7472)

16.36.040 Rental fees.

Every organization, auxiliary or affiliate shall, for the use of the Veterans' Memorial Building or services, pay a rental fee to the City as determined by the City Council by resolution. (ORD-10-0014, § 23, 2010; Prior code § 7473)

16.36.050 Exemption from charges.

The City Manager may permit the use, without charge or with such charges as he deems advisable, of portions of the Veterans' Memorial Building by such nonveteran groups, associations, agencies or corporations as he determines advance the general public interest and welfare by their activities, subject to the following conditions:

A. Such use shall always be subordinate to the use of the building by veteran organizations and their auxiliaries;

B. Free use of any portion of the building shall not be permitted to any organization that charges an admission fee in connection with the use or which obtains any revenue from the use not immediately and solely devoted to the advancement of the general public interest and welfare;

C. Before the City Manager may permit any use of any portion of the building pursuant to this Section, he shall submit the matter of the application therefor to the United Veterans' Council Building Commission, which shall act in an advisory capacity thereon. The decision of the City Manager on the granting or withholding of such per-

mission shall, however, be final and conclusive. (Prior code § 7474)

CHAPTER 16.40 MUNICIPAL MARKET*

16.40.010 Definitions.

A. "Municipal market" means and includes a market for the sale of the commodities mentioned in this Chapter and such other commodities as may hereafter be permitted to be sold at the municipal market established and maintained for the public convenience. This municipal market shall be located along the east side of Cedar Avenue starting at a point sixteen feet (16') north of Ocean Boulevard, thence northerly two hundred sixty-two feet (262') to the southerly edge of the library service driveway, except for an intervening nineteen (19) foot crosswalk; or at such other locations as may be designated by the City Manager and subject to the approval of the City Council.

B. "Vendor" means and includes persons, helpers, officers, agents and employees doing business, or offering to do business at the municipal market. (Prior code § 7450)

16.40.020 Hours.

The municipal market shall be open for business from seven o'clock (7:00) a.m., to twelve o'clock (12:00) p.m. on every Tuesday, Thursday and Saturday; provided, that if any of the days is a holiday, the municipal market may, upon order of the Director of Public Service, be open for business on the preceding day; and provided further, that the municipal market shall not be open for business on Sunday, on the first day of January, the thirtieth of May, the fourth day of July, the first Monday in September, the last Thursday in November if the last Thursday in November is designated by proclamation by the President of the United States, if not so designated then any day so designated, or the twenty-fifth of December. In the event a parade or similar civic event is to be held in the vicinity of the municipal market on a day when it would usually be open for business, the Director of Public Service may, if he determines that the public safety and welfare so require, direct that the municipal market be closed for business on such day. The Director of Public Service shall, if practicable, give notice for one (1) week prior to the closing by posting a conspicuous notice therefor at the municipal market. If the market is closed for business for the day upon which a parade or similar civic event is held, the Director of Public Service may permit it to be opened for business for one (1) day on any preceding or succeeding Monday, Wednesday or Friday which is not a holiday. (Prior code § 7450.1)

16.40.030 Director of Public Service duties.

The Director of Public Service shall have supervision and control of the municipal market and shall receive applications, issue and revoke permits, collect revenues and perform such other duties as may be required by ordinance or resolution. (Prior code § 7450.2)

16.40.040 Spaces—Establishment.

The Director of Public Service shall divide the territory covered by the municipal market along the curblines into spaces six feet (6') in width and shall mark and number the spaces consecutively. The spaces shall extend from the curbline of Chestnut Avenue easterly twenty feet (20'). (Prior code § 7450.3)

16.40.050 Spaces—Use required.

No person, as principal, agent, employee or otherwise, conducting business at the municipal market shall place any goods, any stand, table or other equipment, or any automobile or other vehicle or any part of any thereof, outside of the space allotted for the business. (Prior code § 7450.4)

16.40.060 Spaces—Allotment.

The Director of Public Service shall allot spaces or portions of spaces to vendors holding permits as provided for in this Chapter, and no vendor shall occupy more than one (1) space nor more than one (1) location, nor any space or location

*Cross reference—For provisions on the Director of Public Service, see the City Charter.

not previously allotted to the vendor by the Director of Public Service. (Prior code § 7450.5)

16.40.070 Spaces—Forfeiture.

If any space is not occupied by the vendor to whom it has been allotted by eight a.m., on any market day, the vendor shall forfeit the right to use the space for the market day, and the same may thereafter be allotted to any other vendor for the market day; and the price paid by the forfeiting vendor shall be forfeited to the City. (Prior code § 7450.6)

16.40.080 Number of helpers.

Each vendor shall not have more than one (1) helper at the municipal market. (Prior code § 7450.7)

16.40.090 Sale to other vendors prohibited.

Vendors shall not sell or distribute any commodity to any other vendor at the municipal market. (Prior code § 7450.8)

16.40.100 Sanitation.

No vendor shall sell or offer for sale at the municipal market any commodity which is not wholesome, clean and sanitary. (Prior code § 7450.9)

16.40.110 Scales and measures.

Vendors shall not use scales, weights or measures which do not accurately conform to the standard of weights and measures of the State. (Prior code § 7450.10)

16.40.120 Protection from contamination.

Vendors shall keep all cooked food, game, relishes and dairy products in enclosed receptacles with solid coverings sufficient to effectively protect the contents thereof from dust, dirt and other foreign matter. (Prior code § 7450.11)

16.40.130 Height above street.

All commodities sold or offered for sale at the municipal market shall be kept not less than eighteen inches (18") above the surface of the street. (Prior code § 7450.12)

16.40.140 Distributing advertising or handbills.

No person, as principal, agent, employee or otherwise, shall distribute handbills, advertising matter, or literature of any kind at the municipal market. (Prior code § 7450.13)

16.40.150 Fixing prices.

No person, as principal, agent, employee or otherwise, shall combine with any other person to fix or regulate the price of any commodity or commodities at the municipal market. (Prior code § 7450.14)

16.40.160 Price signs.

Each vendor shall conspicuously display a readily legible sign, card or tag immediately adjacent to each classification or grade of commodity sold or offered for sale by him indicating the price of the commodity. (Prior code § 7450.15)

16.40.170 Restocking.

Vendors shall not acquire new stock or replenish their stock of commodities at the municipal market nor on any streets along which the municipal market is or may be located after eight-thirty a.m. of any market day. (Prior code § 7450.16)

16.40.180 Hawking prohibited.

Vendors shall conduct their business at the municipal market in an orderly and quiet manner and shall not solicit trade in an offensive manner nor by hawking or "spieling" in a loud voice. (Prior code § 7450.17)

16.40.190 Sanitation and cleanup.

Each vendor to whom space is allotted shall keep the space clean and sanitary; shall provide a receptacle sufficient to securely hold all of the rubbish and refuse of the vendor arid shall place all such rubbish and refuse in the receptacle; and shall within fifteen (15) minutes after the close of the municipal market, or after vacating the space,

remove the receptacle and all rubbish, refuse, goods, commodities and all other articles placed there by such vendor or that may have accumulated upon the space during the conduct of the municipal market. (Prior code § 7450.18)

16.40.200 Sales after hours prohibited.

No vendor shall sell or offer for sale any commodity at the municipal market after the time fixed for the closing of the business of the municipal market in this Chapter. (Prior code § 7450.19)

16.40.210 Commodities authorized for sale.

The following named commodities, and no others, unless specifically authorized by the Council, shall be sold or offered for sale at the municipal market:

A. Vegetables, fruit, nuts, eggs, poultry, game, dairy products, jams, jellies, preserves, honey, relishes;

B. Cooked foods, bread and pastry;

C. Items of foods sold to the public at lunchstands;

D. Ice cream, milk, cider, similar refreshments, articles of handicraft (home products). (Prior code § 7450.20)

16.40.220 License tax payment required.

Every person selling or offering for sale any commodity at the municipal market shall pay to the City the license taxes or fees prescribed therefor by the licensing provisions of this Code. (Prior code 7450.21)

16.40.230 Sale of unauthorized commodities prohibited.

No person, as principal, agent, employee or otherwise, shall at the municipal market sell or offer for sale or solicit orders for the sale of any commodity not authorized in this Chapter to be sold at the municipal market. (Prior code § 7450.22)

16.40.240 Permit—Required.

No person, as principal, agent, employee or otherwise, shall occupy or attempt to occupy any space or carry on or attempt to carry on any business at the municipal market without having first obtained a permit so to do in the manner provided in this Chapter, and no person, as principal, agent, employee or otherwise, shall cry or vend newspapers, periodicals or any other publications upon or along any portions of streets used for the conduct of the municipal market except at stands therein for which the vendors hold permits, or upon or along any portion of any street or sidewalk immediately adjacent thereto during the time the municipal market is being conducted. (Prior code § 7450.23)

16.40.250 Permit—Issuance.

Permits for conducting business at the municipal market shall be granted by the Director of Public Service upon application therefor by any person desiring to conduct business at the Municipal Market; such application shall be made in writing and shall state the name and address of the applicant, a statement of the kind or kinds of commodities desired to be sold at the Municipal Market, a statement of the place, giving street number or other address, where the commodity is produced, manufactured or purchased, and a statement of the time when the applicant desires to use the permit; every such application shall be accompanied with sufficient money to pay the market fees for the time requested in the application; if the application is in accordance with the provisions of this Chapter and the business proposed to be conducted at the Municipal Market is authorized by this Chapter, the Director of Public Service shall issue a permit to the applicant; provided, however, that the Director of Public Service may revoke and cancel any permit to do business at the Municipal Market upon the violation of the provisions of this Chapter by the holder of any permit, or for any misrepresentation in the application of Chapter vendor for permit, or upon a permittee's conviction of any misdemeanor arising out of or incident to the carrying on of the permittee's business at the Municipal Market, or for any misrepresentation of goods or commodities sold or displayed by the permittee, and notice of the revocation and cancellation shall be given verbally

or in writing to the vendor and after such notice is given it is unlawful for the person whose permit has been revoked or cancelled to carry on or offer to carry on any business at the Municipal Market; and, provided further, that the Director of Public Service may refuse to issue a second permit to any person whose permit has been previously revoked or cancelled. (Prior code § 7450.24)

CHAPTER 16.43 AIRPORT NOISE COMPATIBILITY*

16.43.010 Definitions.

A. "Air Carrier" means a scheduled carrier, certificated under FAR Parts 121, 125, or 135, operating aircraft having a certificated maximum takeoff weight of seventy-five thousand (75,000) pounds or more, transporting passengers or cargo.

B. "California Noise Standards" means the Noise Standards for California Airports, as set forth in 21 California Code of Regulations, Section 5000 et seq. Unless otherwise stated, the terms used in this Chapter shall have the same meanings as set forth in the Noise Standards.

C. "Charter operation" means a revenue producing takeoff or landing, operated by a person or entity that is neither an Air Carrier nor a Commuter Carrier, using an aircraft having a certificated maximum takeoff weight of seventy-five thousand (75,000) pounds or more and transporting passengers or cargo.

D. "Commuter" and "commuter carrier" means a scheduled carrier, certificated under FAR Part 121 or 135, operating aircraft having a certificated maximum takeoff weight less than seventy-five thousand (75,000) pounds and transporting passengers or cargo.

E. "Engine runup" means the operation of an aircraft engine while stationary for the purpose of testing (other than preflight), servicing or repairing such engine.

F. "Flight" means one (1) arrival and one (1) departure by an aircraft.

G. "General aviation" means aviation activity other than operations by Air Carriers, Commuter Carriers, Industrial operators, Charter operators, and public aircraft.

H. "Incompatible property" means property used for residential purposes, schools and churches. Property subject to an easement for noise and property acoustically treated to reduce interior CNEL levels is not rendered compatible as a result of such easement or acoustic treatment.

I. "Industrial operation" means one (1) takeoff or one (1) landing of an aircraft over seventy-five thousand (75,000) pounds maximum certificated gross takeoff weight for purposes of production, testing, remanufacturing, or delivery by or under the control of a manufacturer based at the Long Beach Airport. This definition does not include flights into or out of Long Beach for purposes of maintenance, retrofit or repair.

J. "Operation" means a takeoff or a landing of an aircraft at the Long Beach Airport.

K. "Owner/operator" means the owner of record of an aircraft operating at the Airport and the authorized user of that aircraft if different from the owner.

L. "Practice Low Approach" and "Practice Missed Approach" means an action by an aircraft consisting of an approach to or over the Airport for a landing where the pilot intentionally does not make contact with the runway.

M. "Public Aircraft" means a "public aircraft" as defined in 49 USC § 40102.

N. "Stop and Go" means an action by an aircraft consisting of a landing followed by a complete stop on the runway and a takeoff from that point.

O. "Touch and Go" means an action by an aircraft consisting of a landing and departure on a runway without stopping or exiting the runway.

P. "Training operation" means Touch and Go, Stop and Go, Practice Low Approach, and Practice Missed Approach Operation, or any of them. (ORD-25-0005 § 1, 2025; Ord. C-7320 § 2, 1995)

16.43.020 Scope of permission to use the Airport.

Any authorization to conduct operations at the Airport which is granted or continued under

*Note—Prior ordinance history: Ord. C-6618.

this Chapter is not transferable, directly or indirectly. Entities which are jointly owned or which own a controlling interest in another entity shall not be considered separate from the commonly owned or controlled entity. Although the authorizations to conduct operations at the Airport which are granted or continued under this Chapter may be considered to be interests requiring notice and an opportunity for hearing before revocation, such authorizations nevertheless remain public rights to which no user may obtain continuing ownership. Control of any permits issued pursuant to this Chapter may last only so long as the owner/operator complies with the conditions of use, ordinances, rules, and regulations of the City, including compliance with the terms of operating permits and the payment of all fees and charges established from time to time by the City.
(ORD-25-0005 § 1, 2025; Ord. C-7320 § 2, 1995)

16.43.030 Prohibited activities.

A. Training Operations. No Touch and Go, Stop and Go, Practice Low Approach, or VFR Practice Missed Approach shall be conducted at the Airport except between seven a.m. and seven p.m. on weekdays and between eight a.m. and three p.m. on Saturdays, Sundays, New Year's Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day and Christmas Day; provided, however, that if any such holiday falls on Saturday or Sunday and, as a result, a holiday is observed on the preceding Friday or succeeding Monday, then such Friday or Monday, as the case may be, shall be considered to be a holiday for purposes of this Section. Except for instrument training, Training Operations shall be conducted only on Runways 26R/8L and 26L/8R, unless the FAA directs such Operations on Runway 12/30.

B. Engine Runups. Engine runups shall be permitted only between the hours of seven a.m. and nine p.m. on weekdays and nine a.m. and nine p.m. on weekends and holidays. Such runups may be conducted only at locations designated for such purposes by the Airport Manager. Nothing in this Section shall be deemed to require relocation of existing runup facilities for which appropriate noise buffering devices have been constructed.

C. Formation Takeoffs and Landings. Except as necessary in the manufacture or repair of aircraft, formation takeoffs and landings are prohibited at Long Beach Municipal Airport.

D. Unapproved Charter Flights. No proposed charter operation shall be conducted unless the written permission of the Airport Manager has been sought and received before such operation is scheduled to occur. (ORD-25-0005 § 1, 2025; Ord. C-7320 § 2, 1995)

16.43.040 Maximum SENEL limits.

A. Subject to the authority of the Airport Manager to adjust permissible single event noise limits for categories of Airport users in order to reduce such group's cumulative noise levels, all non-governmental Operations at the Airport shall meet the following SENEL limits:

	7:00 a.m. to 10:00 p.m.	10:00 p.m. to 11:00 p.m. and 6:00 a.m. to 7:00 a.m.	11:00 p.m. to 6:00 a.m.	Monitoring Station No.
Runway	(Dep/Arr)	(Dep/Arr)	(Dep/Arr)	(Dep/Arr)
30	102.5/101.5	90/90	79/79	9/10
12	102.5/101.5	90/90	79/79	10/9
26R	92/88	*/	*/	6/1
26L	95/93	*/	*/	5/2
8R	95/92	*/	*/	2/5
8L	88/92	*/	*/	1/6

* Except in case of emergency or air traffic direction, all aircraft Operations between the hours of 10:00 p.m. and 7:00 a.m. are limited to runways 30 and 12.

B. Violations occurring during the period between ten p.m. and eleven p.m. which are the result of unanticipated delays beyond their reasonable control of the aircraft Owner/Operator shall be waived upon the presentation of evidence satisfactory to the Airport Manager that the delayed arrival or departure resulted from such circumstances. Delays caused by mechanical failure (but not by routine maintenance), by weather conditions or by air traffic control conditions will be considered beyond the Owner/Operator's control.

C. The SENEL limits for the period from six a.m. to seven a.m. and from ten p.m. to eleven p.m. shall be subject to revision at the end of the fourth calendar quarter following the implementation of this Chapter. If, for the period covered by the four (4) calendar quarters following implementation of this Chapter, cumulative aircraft noise has exceeded the level allowed by Subsection 16.43.050.A, these limits shall be reduced to eighty-five (85) SENEL. The SENEL for the period from six a.m. to seven a.m. and from ten p.m. to eleven p.m. shall, however, revert to ninety (90) SENEL if, for any subsequent four (4) quarters, cumulative aircraft noise has not exceeded the level allowed by Subsection 16.43.050.A. (ORD-25-0005 § 1, 2025; Ord. C-7320 § 2, 1995)

16.43.050 Cumulative noise limits and noise budgets.

A. It is the goal of the City that Incompatible Property in the vicinity of the Airport shall not be exposed to noise above sixty-five (65) CNEL. In determining compliance with this noise goal and with the noise budgets established by this Chapter, a tolerance of one (1) dB CNEL will be applied. In assessing cumulative noise levels for any period less than one (1) year, the Airport Manager shall take into consideration and allow for reasonably anticipated seasonal variations in Operations and noise. The noise of military and Public Aircraft, for which the City bears no liability, will be excluded in calculating CNEL and in assessing compliance with the CNEL goal and CNEL budgets set forth in this Chapter.

B. For purposes of this Section, users of the Airport shall be categorized as follows: Air Carriers, Commuter Carriers, Industrial operators, Charter operators, and General Aviation (which includes all other users). Each user group at the Airport will be assigned a noise budget for takeoff and landing noise on Runway 30/12.

C. Initial noise budgets hereunder for Air Carriers, Commuter Carriers, Charter operators, and General Aviation shall be established determining the actual monitored noise level of each user group for the twelve (12) months ended October 31, 1990. In the case of Industrial operators, the baseline November 1, 1989, to October 31, 1990, noise budget shall be established by determining the actual monitored noise level of that user group for the twelve (12) months ended October 31, 1990, as augmented to accommodate reasonably projected Operations for manufacturing and flight test purposes by aircraft types which were under design during the base year but had not yet entered service. These noise budgets are selected to comply with the provisions of the Airport Noise and Capacity Act of 1990. Noise budgets shall be established by the Airport Manager and shall be published in a Technical Appendix to this Chapter. Administrative review of the decisions of the Airport Manager under this Chapter shall be conducted pursuant to the provisions of Section 16.43.110.

D. Following the conclusion of the first calendar quarter after the implementation of this Chapter, and following the conclusion of each calendar quarter thereafter, the Airport Manager shall issue a report assessing compliance with the noise goal set forth is Subsection A above and with the noise budgets established pursuant to Subsection C above. (ORD-25-0005 § 1, 2025; Ord. C-7320 § 2, 1995)

16.43.060 Compliance with noise budgets.

A. General Aviation Operations.

1. If, for the six (6) month period covered by the two (2) calendar quarters following implementation of this Chapter (or for any six (6) month period thereafter): (a) General Aviation's cumulative noise (for such six (6) month period) exceeds the level established pursuant to Subsection

16.43.050.C; and (b) overall aircraft noise for such six (6) month period exceeds the level allowed by Subsection 16.43.050.A, the GA Noise Committee will be permitted to institute voluntary procedures to reduce General Aviation's cumulative noise. If, for the two (2) calendar quarters following a determination by the Airport Manager that General Aviation noise and total aircraft noise have exceeded the levels permitted by Section 16.43.050, the GA Noise Committee has been unsuccessful in reducing General Aviation noise to the level established pursuant to Subsection 16.43.050.C (and overall airport noise for the prior twelve (12) month period exceeds the level permitted by Subsection 16.43.050.A), the Airport Manager shall, after consultation with the GA Noise Committee, institute such reductions in the maximum SENELs applicable to General Aviation Operations as the Airport Manager determines (recognizing the mandatory reductions in the SENEL limit for operations from six a.m. to seven a.m. and from ten p.m. to eleven p.m. to be enforced pursuant to Section 16.43.040) are necessary for General Aviation to achieve its CNEL budget. On an annual basis for as long as overall airport noise exceeds the level allowed by Subsection 16.43.050.A and General Aviation noise exceeds the level established pursuant Subsection 16.43.050.C, the Airport Manager shall raise or lower the SENEL limits applicable to General Aviation as necessary to achieve the General Aviation CNEL budget; provided, however, that such reductions in the SENEL limits shall not be applicable to flights for maintenance, retrofit or repair performed by a manufacturer with manufacturing facilities at the Airport.

2. The Airport Manager shall give at least thirty (30) days' notice of any SENEL reduction required by Subsection A.1. Any Owner/Operator who contests any decision of the Airport Manager hereunder shall be entitled to the administrative hearing and appeal procedures set forth in Section 16.43.110.

B. Industrial Operations.

1. Pending assessment of compliance with the CNEL budget applicable to Industrial Operations, the number of annual Flights by that user group shall not be increased above the number for the twelve (12) months ended October 31, 1990, as adjusted to accommodate Flights for manufacturing and test purposes by aircraft types which were under design during the period from November 1, 1989, to October 31, 1990, but had not yet entered service.

2. In order to achieve applicable noise budgets, users within the Industrial category will be encouraged to operate at the lowest average noise level consistent with safety. This encouragement will be provided by permitting increases in the number of allowed Industrial Flights if the Industrial user group achieves compliance with the CNEL budget established pursuant to this Chapter, as determined on an annual basis.

3. The Airport Manager shall determine, at the end of the fourth calendar quarter following implementation of this Chapter, whether additional flights may be allocated to Industrial operators based on the cumulative noise generated by Industrial users during the prior twelve (12) month period. Additional flights above those permitted under Subsection B.1 shall be awarded only to the extent the Airport Manager determines that initiation of such Flights will not lead the Industrial users, as a group, to exceed the level allowed by Subsection 16.43.050.C.

4. Flights allocated by the Airport Manager pursuant to Subsection B.3 shall be awarded for a period of one (1) year. In the event the Airport Manager determines: (a) that implementation of Flights awarded under Subsection B.3 has resulted in cumulative noise from Industrial Flights in excess of the Industrial noise budget; and (b) that overall aircraft noise exceeds the level allowed by Subsection 16.43.050.A, the Airport Manager shall revoke such of the flight awards granted under Subsection B.3 as the Airport Manager determines must be revoked in order to achieve compliance with the Industrial noise budget. In making this determination, the first Flights awarded under Subsection B.3 to be eliminated will be those of the operators with the highest average noise levels per Flight during the prior twelve (12) months.

In the event that equal priorities exist, the Airport Manager shall conduct a lottery to determine which Flights shall be eliminated.

5. No industrial operator will be required to reduce its annual Operations below the number of Operations for the twelve (12) months ended October 31, 1990, as adjusted to accommodate Operations for manufacturing and flight test purposes by aircraft types which were under design during the period from November 1, 1989, to October 31, 1990, but had not yet entered service. The number of annual Industrial Flights below which each Industrial user shall not be reduced shall be set forth in the Technical Appendix to this Chapter.

6. In order to minimize Industrial noise, all Industrial flights shall be conducted by aircraft which comply with the standards of FAR Part 36 Stage 3 and all Operations shall be scheduled between the hours of seven a.m. and ten p.m.

C. Charter Operations.

1. In order to minimize noise from Charter Operations, all Charter Operations shall be conducted by aircraft which comply with the standards of FAR Part 36 Stage 3 and all Charter Operations shall be scheduled between the hours of seven a.m. and ten p.m.

2. If, for the six (6) month period covered by the two (2) calendar quarters following implementation of this Chapter (or for any six (6) month period thereafter): (a) Charter operators' cumulative noise (for such six (6) month period) exceeds the level established pursuant to Subsection 16.43.050.C; and (b) overall aircraft noise for such six (6) month period exceeds the level allowed by Subsection 16.43.050.A, the Airport Manager will attempt to gain voluntary compliance by Charter operators with operating restrictions which will result in compliance with the CNEL goal established for this user group. If, for the two (2) calendar quarters following a determination that Charter operators' noise and total aircraft noise have exceeded the levels permitted by Section 16.43.050, the Airport Manager is unsuccessful in reducing Charter operators' noise to the level established pursuant to Subsection 16.43.050.C (and overall Airport noise for the prior twelve (12) month period exceeds the level permitted by Subsection 16.43.050.A), the Airport Manager shall, after consultation with Charter operators, institute such reductions in the SENEL limits applicable to Charter Operations as the Airport Manager determines (recognizing the mandatory reductions in the SENEL limit for operations from six a.m. to seven a.m. and from ten p.m. to eleven p.m. to be enforced pursuant to Section 16.43.040) are necessary for Charter operators to achieve their CNEL budget. On an annual basis for as long as overall airport noise exceeds the level allowed by Subsection 16.43.050.A and Charter operators' noise exceeds the level established pursuant Subsection 16.43.050.C, the Airport Manager shall raise or lower the SENEL limits applicable to Charter operators as necessary to achieve the Charter operators' CNEL budget.

3. The Airport Manager shall give at least thirty (30) days' notice of any SENEL reduction required by Subsection C.2. Any Owner/Operator who contests any decision of the Airport Manager hereunder shall be entitled to the administrative hearing and appeal procedures set forth in Section 16.43.110.

D. Commuter Flights.

1. Commuter Carriers shall be permitted to operate not less than twenty-five (25) flights per day, the number of Flights authorized on November 5, 1990. Pending assessment of compliance with the CNEL budget applicable to Commuter Carriers, Flights by these users shall not be increased above the number permitted as of November 5, 1990.

2. In order to achieve applicable noise budgets, users within the Commuter category will be encouraged to operate at the lowest average noise level consistent with safety. This encouragement will be provided by permitting increases in the number of allowed Commuter Flights if the Commuter user group achieves compliance with the CNEL budget established pursuant to this Chapter, as determined on an annual basis.

3. Flights which are available for use, but which are unallocated at the time this Chapter becomes

effective, shall be allocated on a first-come, first-served basis. Allocations of Flights which are sought by more than one (1) user shall be determined by lottery.

4. The Airport Manager shall determine, at the end of the fourth calendar quarter following implementation of this Chapter, whether additional Flights may be allocated to Commuters based on the cumulative noise generated by Commuter Operations during the prior twelve (12) month period. Additional Flights above those permitted under Subsection D.1 shall be awarded only to the extent the Airport Manager determines that initiation of service utilizing those flights will not lead the Commuters, as a group, to exceed the level allowed by Subsection 16.43.050.C.

5. Flights allocated by the Airport Manager pursuant to Subsection D.4 shall be awarded for a period of one (1) year. In the event the Airport Manager determines: (a) that implementation of Flights awarded under Subsection D.4 has resulted in Commuter cumulative noise in excess of the commuter noise budget; and (b) that overall aircraft noise exceeds the level allowed by Subsection 16.43.050.A, the Airport Manager shall revoke such of the Flight awards granted under Subsection D.4 as the Airport Manager determines must be revoked in order to achieve compliance with the Commuter noise budget. In making this determination, the first Flights awarded under Subsection D.4 to be eliminated will be those of the operators with the highest average noise levels per Flight during the prior twelve (12) months. In the event that equal priorities exist, the Airport Manager shall conduct a lottery to determine which Flights shall be eliminated.

6. In order to minimize Commuter noise, all Commuter Operations shall be conducted by aircraft which comply with the standards of FAR Part 36 Stage 3 and all Operations shall be scheduled between the hours of seven a.m. and ten p.m.

E. Air Carrier Flights.

1. Air Carriers shall be permitted to operate not less than forty-one (41) flights per day, the number of flights authorized on November 5, 1990. Pending assessment of compliance with the CNEL budget applicable to Air Carriers, Flights by these users shall not be increased above the number permitted as of November 5, 1990.

2. In order to achieve applicable noise budgets, users within the Air Carrier category will be encouraged to operate at the lowest average noise level consistent with safety. This encouragement will be provided by permitting increases in the number of allowed Air Carrier Flights if the Air Carrier user group achieves compliance with the CNEL budget established pursuant to this Chapter, as determined on an annual basis.

3. Flights which are available for use, but which are unallocated at the time this Chapter becomes effective, shall be allocated on a first-come, first-served basis. Allocations of Flights which are sought by more than one (1) user shall be determined by lottery.

4. The Airport Manager shall determine, at the end of the fourth calendar quarter following implementation of this Chapter, whether additional Flights may be allocated to Air Carriers based on the cumulative noise generated by Air Carrier Operations during the prior twelve (12) month period. Additional Flights above those permitted under Subsection E.1 shall be awarded only to the extent the Airport Manager determines that initiation of service utilizing those Flights will not lead the Air Carriers, as a group, to exceed the level established pursuant to Subsection 16.43.050.C.

5. Flights allocated by the Airport Manager pursuant to Subsection E.4 shall be awarded for a period of one (1) year. In the event the Airport Manager determines: (a) that implementation of Flights awarded under Subsection E.4 has resulted in air carrier cumulative noise in excess of the Air Carrier noise budget; and (b) that overall aircraft noise exceeds the level allowed by Subsection 16.43.050.A, the Airport Manager shall revoke such of the Flight awards granted under Subsection E.4 as the Airport Manager determines must be revoked in order to achieve compliance with the Air Carrier noise budget. In making this determination, the first Flights awarded under Subsection E.4 to be eliminated with be those

of the operators with the highest average noise levels per Flight during the prior twelve (12) months. In the event that equal priorities exist, the Airport Manager shall conduct a lottery to determine which Flights shall be eliminated.

6. In order to minimize Air Carrier noise, all Air Carrier Operations shall be conducted by aircraft which comply with the standards of FAR Part 36 Stage 3 and all operations shall be scheduled between the hours of seven a.m. and ten p.m.

F. Administrative Review. Administrative review of the decisions of the Airport Manager under this Section shall be conducted pursuant to the provisions of Section 16.43.110. (ORD-25-0005 § 1, 2025; Ord. C-7320 § 2, 1995)

16.43.070 General exemptions.

The following categories of aircraft shall be exempt from the provisions of this Chapter:

A. Public Aircraft, including military aircraft;

B. Law enforcement, emergency, and fire or rescue aircraft operated by any governmental entity;

C. Aircraft used for emergency purposes during an emergency which has been officially proclaimed by competent authority pursuant to the laws of the United States, the State or the City;

D. Civil Air Patrol aircraft when engaged in actual search and rescue missions;

E. Aircraft engaged in landings or takeoffs while conducting tests, pursuant to written authorization of the Airport Manager, to determine probable compliance with the provisions of this Chapter. Such tests shall only be authorized for aircraft which, based on material submitted to the Airport Manager, are reasonably expected to be able to comply with the terms of this Chapter;

F. Aircraft experiencing an in-flight emergency; provided, however, that the aircraft Owner/Operator or pilot in command shall, within ten (10) days after a written request from the City, file with the Airport Manager an affidavit documenting the precise emergency condition(s) which necessitated the Operation;

G. Aircraft operating pursuant to explicit air traffic control direction in a manner which would otherwise not comply with the terms of this Chapter;

H. Aircraft conducting operations in response to a medical emergency which has been documented in the manner required by the Airport Manager. (ORD-25-0005 § 1, 2025; Ord. C-7320 § 2, 1995)

16.43.080 Presumptions for violation responsibility.

A. In the case of any Training Operation in which both an instructor pilot and a student pilot are in an aircraft flown in violation of any of the provisions of this Chapter, the instructor pilot shall be presumed to have caused such violation.

B. For purposes of this Chapter, the beneficial owner of an aircraft shall be presumed to be the pilot of the aircraft with authority to control the aircraft's operation, except where the aircraft is leased, in which case the lessee shall be presumed to be the pilot with authority to control the aircraft's operation. Such presumptions may be rebutted only if the owner or lessee identifies the person who in fact was the pilot in command at the time of the asserted violation.

C. In each case in which the actual operator of an aircraft can be determined, such operator shall be responsible for compliance with the terms of this Chapter.

D. Employees of corporate owners/operators shall not be issued individual notices of violation unless it is shown that such employees failed to follow company operating procedures.

E. Notices given by the Airport Manager, when sent by United States mail (and not returned) shall be deemed received five (5) days after mailing or when sent by email with return receipt, on the date of return receipt. (ORD-25-0005 § 1, 2025; Ord. C-7320 § 2, 1995)

16.43.090 Violation enforcement.

A. If the Airport's General Aviation Owner/Operators organize, maintain, and oversee the activity of a General Aviation Noise Committee (the

"GA Noise Committee") to encourage voluntary noise abatement efforts, the Airport Manager will provide the GA Noise Committee with reports identifying aircraft Owner/Operators who have violated the provisions of this Chapter.

B. The GA Noise Committee, if formed, will publicize the Airport's noise abatement program and encourage compliance. In the case of General Aviation Owner/Operators which fail to comply with the City's enacted noise restrictions, the Committee shall be permitted to attempt to achieve voluntary compliance. If no Noise Committee is formed or if a General Aviation Owner/Operator does not comply with the City's enacted noise restrictions notwithstanding the Noise Committee's voluntary enforcement efforts, the Airport Manager will proceed with mandatory enforcement through the procedures of this Section 16.43.090, Section 16.43.100 of this Chapter, or both.

C. The Owner/Operator of any aircraft operated contrary to the provisions of this Chapter shall be given written notice by the Airport Manager that a violation has occurred. Said notice shall include a copy of the pertinent provisions of this Chapter and shall state that action must be taken by the Owner/Operator to insure compliance with this Chapter and all Airport regulations. Copies of the notices given by the Airport Manager under this Subsection shall be made available to the GA Noise Committee upon reasonable notice so that the GA Noise Committee may endeavor to obtain voluntary compliance with the City's noise restrictions.

D. In the event of a violation of this Chapter after a notice pursuant to Subsection C above has been received or been deemed received, the Airport Manager shall give the Owner/Operator written notice of such violation. Said notice shall also state that the aircraft Owner/Operator must, within fourteen (14) days after such notice has been received or been deemed received, prepare and implement a written compliance program for its Operations at Long Beach Airport and submit said compliance program to the Airport Manager for review. The Airport Manager shall extend this period upon a showing of good cause. The compliance program shall contain feasible steps, consistent with safety, by which the Owner/Operator expects to achieve compliance with the provisions of this Chapter and to minimize the noise of its Operations. The Airport Manager shall not approve or disapprove compliance programs, but may give notice to the Owner/Operator that one (1) or more aspects of a compliance program are inconsistent with this Chapter or with other rules or regulations applicable to users of the Airport. The requirement that a compliance plan shall be prepared, implemented, and submitted to the Airport Manager shall not affect or excuse any violation of this Chapter occurring after the notice given pursuant to this Subsection D has been received or has been deemed received. Copies of the notices given by the Airport Manager under this Subsection shall also be made available to the GA Noise Committee upon reasonable notice.

E. A surcharge of two hundred dollars ($200.00) shall be paid by the Owner/Operator of any aircraft operated on one (1), but only one (1), occasion in violation of this Chapter within twenty-four (24) months after a notice pursuant to Subsection D has been received or has been deemed received.

F. After a notice under Subsection D has been received or has been deemed received by an Owner/Operator, a surcharge of six hundred dollars ($600.00) shall be paid by such Owner/Operator for the second and for each subsequent violation of this Chapter occurring during any twelve (12) month period.

G. No surcharge shall be sought for Operations occurring before: (a) a notice pursuant to Subsection C advising said Owner/Operator that the aircraft has failed to comply with this Chapter; and (b) a notice pursuant to Subsection D advising the Owner/Operator of a second violation and of the need for the preparation of a compliance program has been received or been deemed received by the Owner/Operator. The maximum surcharge for an Owner/Operator that has not been the subject of a notice of violation within the previous twelve (12) months shall be two hundred

dollars ($200.00). Owner/Operators with no violations within the previous twenty-four (24) months shall be processed pursuant to Subsection D above.

H. Any Owner/Operator who contests any decision of the Airport Manager hereunder shall be entitled to the administrative hearing and appeal procedures set forth in Section 16.43.110.

I. The surcharges enumerated in LBMC 16.43.090.E, F, and G above shall be automatically adjusted on July 1, 2025, and on July 1 of each year thereafter, upward or downward, equivalent to the most recent change in the annual average of the Consumer Price Index as published by the United States Department of Labor for the Los Angeles-Riverside-Orange County area. For purposes of calculating the annual inflation/deflation factor under this Section, the base year shall be that year ending with December 31, 2024. Rates shall next be adjusted based on the annually calculated change from the base year (ORD-25-0005 § 1, 2025; Ord. C-7320 § 2, 1995)

16.43.100 Alternative enforcement procedures.

It is a misdemeanor, subject to the penalties applicable to misdemeanors, for the Owner/Operator of an aircraft to exceed any established SENEL limit without a reasonable basis for believing that the aircraft employed would comply with the applicable SENEL limit. Owner/Operators of scheduled Flights utilizing aircraft which comply with the standards of FAR Part 36 Stage 3 shall be presumed, for the purposes of this Section, to possess a reasonable basis for believing that such aircraft can be operated in compliance with applicable SENEL limits. (ORD-25-0005 § 1, 2025; Ord. C-7320 § 2, 1995)

16.43.110 Administrative hearings and appeals.

A. In any case where a person or entity notified of a violation of this Chapter or a decision of the Airport Manager or the Airport Manager's staff under this Chapter which such person or entity contends is erroneous or unjustified, the person shall be entitled to an administrative hearing before the Airport Manager or the Airport Manager's designee. The request for such a hearing shall be made within fifteen (15) days following the mailing of notice of the decision to be reviewed or within ten (10) days following actual receipt of notice delivered other than by mail. The Airport Manager shall give notice when the hearing will be conducted (which shall be between fourteen (14) and twenty-one (21) days after the request for a hearing is received). The administrative hearing shall be informal. Witnesses may be called, but written statements may be submitted. All relevant and persuasive evidence shall be considered. The rules of evidence, discovery, and formal trial procedures shall not be applicable. Following the hearing, the Airport Manager shall prepare a record of the proceeding, including a copy of all written materials received and a summary of the oral testimony presented. The Airport Manager shall, within ten (10) days following the hearing, issue a written post-hearing decision. That decision shall be final unless appealed to the City Manager as provided in Subsection B below.

B. Any final decision of the Airport Manager pursuant to this Chapter shall be appealable to the City Manager by giving written notice to the City Manager within fifteen (15) days following the mailings of a notice of final decision by the Airport Manager. The City Manager or the City Manager's designee shall give such person or entity at least fifteen (15) days' notice in writing specifying the time and place of the hearing of the appeal, and inviting such person or entity to present any additional argument deemed appropriate in determining whether a violation has occurred. The notice shall be served by U.S. mail, with service being complete upon mailing. The hearing may be held before a hearing officer designated by the City Manager; provided that the designated hearing officer shall not be from the same department as the Airport Manager, and shall be at least a Bureau Manager. The City Manager may, in the alternative, appoint an administrative hearing board consisting of not less than three (3) members of the City's administrative staff, each of whom must meet the same criteria as an administrative Hearing Officer as described above. The

appeal will be decided on the basis of the submissions to the Airport Manager, the Airport Manager's summary of the evidence presented, and the arguments presented to the City Manager or the City Manager's designee. The City Manager or the City Manager's designee shall not be required to accept additional evidence. A written notice of decision shall be issued within fifteen (15) days following the hearing on appeal. The final decision of the City Manager shall be final unless appealed to the City Council within fifteen (15) days after the mailing of notice thereof by the City Manager.

C. Appeals of final decisions of the City Manager under this Chapter shall be conducted as provided in Chapter 2.93 of this Code.

D. The pendency of any proceeding pursuant to Section 16.43.110 shall not affect or excuse any violation of this Chapter occurring during the pendency of such proceedings unless the Airport Manager, the City Manager, or City Council stays the effectiveness of the decision under review. (ORD-25-0005 § 1, 2025; Ord. C-7320 § 2, 1995)

16.43.120 Changes in methods of monitoring noise or calculating noise impacts.

Neither the methods nor the devices used in measuring aircraft noise under this Chapter shall be changed or adjusted in any manner which would limit or restrict operations or activities which were permitted by this Chapter when it was initially adopted. (ORD-25-0005 § 1, 2025; Ord. C-7320 § 2, 1995)

CHAPTER 16.44 AIRPORT

16.44.010 Definitions.

Unless the context otherwise requires, the definitions set forth in this Section govern the construction of this Chapter:

A. "Aircraft" means any contrivance now known or hereafter invented, used or designed for navigation of or flight in the air.

B. "Air carrier" means any individual, partnership, corporation or association undertaking, directly or indirectly, to engage in the carriage in air commerce of goods or passengers for compensation or hire, or in the operation of aircraft in the conduct or furtherance of a business wherein the principal purpose of the aircraft operation is the air transportation of passengers or property.

C. "Airport" means the property described in Section 16.44.020 as set aside for Airport purposes, as the same may from time to time be altered or changed, which property shall be called the Long Beach Airport (Daugherty Field), and wherever in this Code the words "Airport," "field," "Long Beach Municipal Airport," "Municipal Airport," or "Daugherty Field" appear they mean the Long Beach Airport (Daugherty Field).

D. "Director" means the Director of Aeronautics, Airport Manager.

E. "Itinerant aircraft" means any aircraft not permanently based at the Airport.

F. "Landing" means the arrival of aircraft at the Airport for the purpose of loading or discharging passengers, goods or property.

G. "Standard gross weight" means the weight specified for a particular aircraft in the license therefor granted by the Federal Aviation Agency, or such other governmental authority having jurisdiction in the premises. (Prior code § 7420)

16.44.020 Location.

The Airport shall be located upon certain property and in the City of Long Beach, County of Los Angeles, State of California, bounded and described as follows:

Beginning at the northwest corner of Lot 48, Tract No. 8084 as per map recorded in Book 171 page 29 of maps, records of the county; thence easterly 6,467.72 feet along the north lines of Lots 48, 49, and 51, said Tract No. 8084, to the west line of Lakewood Boulevard, 100 feet wide; thence southerly 5,251.60 feet along said west line of Lakewood Boulevard to the south line of Lot 67, said Tract No. 8084; thence westerly 1,270.32 feet along said south line of Lots 67 and 66 of said Tract No. 8084 to the southwest corner of said Lot 66; thence northerly 10 feet along the west line of said Lot 66 to a line 40 feet northerly of and parallel to centerline of Spring Street, being the

north line of Spring Street, 80 feet wide, as established August 30, 1940, by Ordinance No. C-1832 of City of Long Beach; thence westerly 4978.95 feet, more or less, along said north line of Spring Street, 80 feet wide, to the east line of Vine Avenue as shown on map of American Colony Tract recorded in Book 19, pages 89 and 90, of miscellaneous records in the office of the County Recorder, said Vine Avenue having been vacated June 12, 1928, by Resolution No. C-3464 of City of Long Beach; thence southerly 10 feet along said east line of Vine Avenue to an angle in City boundary at north line of Spring Street, 60 feet wide; thence westerly 930 feet along said north line of Spring Street, 60 feet wide, to a line 420 feet easterly of and parallel to the centerline of Cherry Avenue; thence northerly 1,230.28 feet along said line 420 feet east of the centerline of Cherry Avenue; thence easterly 460 feet to a line 880 feet easterly of and parallel to the centerline of Cherry Avenue; thence northerly 1,340.25 feet along said line 880 feet easterly of the centerline of Cherry Avenue to the south line of Wardlow Road, 80 feet wide; thence easterly 2,061.20 feet along said south line of Wardlow Road to the southerly prolongation of the westerly line of Lot 50, said Tract No. 8084, thence northerly along said southerly pro-

longation, said westerly line of Lot 50 and the northerly prolongation thereof, a distance of 759.86 feet to the south of Lot 49, said Tract No. 8084; thence westerly and southwesterly 2074.62 feet along said south line of Lot 49 and southerly line of the aforementioned Lot 48 to the south west corner of said Lot 48; and thence northerly 1,763.56 feet along the westerly line of said Lot 48 to the northwest corner thereof, to the point of beginning. Together with such other lands as may hereafter be set aside for airport purposes, is set aside as an airport. (Prior code § 7420.1)

16.44.030 Director duties.

It shall be the duty of the Director to enforce the provisions of this Chapter, and for the purpose of securing enforcement thereof, the Director and his duly authorized representatives shall have the right and are empowered to enter and inspect all hangars, buildings and equipment maintained at or operated from the Airport. Upon such inspection, if the Director or his representatives finds any such hangar or other building or equipment is in an unsafe condition, it shall be his duty to notify the owner or lessee thereof, in writing, of the unsafe condition, setting forth the condition, and it shall thereafter be that no person, whether as principal, agent, servant, employee or otherwise, shall operate or use any such hangar building or equipment until the condition thereof has been remedied so that the same will be safe and has received the approval of the Director. (Prior code § 7420.2)

16.44.040 Commercial use permit—Required.

No person shall use the Airport for the carrying on or conduction of commercial aviation or the carrying of passengers, freight, express or mail, or for student flying, communications or any other commercial purpose without first securing a written permit from the Director; provided, however, that this shall not apply to fixed base operators located on the Airport who hold valid lease agreements with the City for such purposes. (Prior Code § 7420.3)

16.44.041 Ground transportation services.

A. All van, limousine, bus and other ground transportation services for hire shall comply with the requirements of Section 16.44.040 and all applicable sections of Chapter 5.66 of this Code in obtaining the permits or licenses specified by the Airport Manager. Only those ground transportation services described in this Section having obtained the required permits are authorized to conduct business at the Airport unless exempted by Subsections A, C, D, E or F of Section 5.66.020 of this Code.

B. Ground transportation services authorized to conduct business at the Airport shall park in the location or locations designated by the Airport Manager for parking of such vehicles. Only ground transportation services authorized to conduct business at the Airport may park in such location.

C. No person or entity providing ground transportation services shall park vehicles in any location other than the locations designated by the Airport Manager for parking of such vehicles. (Ord. C-6079 § 1, 1984)

16.44.050 Field rules.

A. Vehicles shall not be driven upon any portion of the Airport other than driveways and parking places specifically laid out for the use of the vehicles; provided, however, that this shall not apply to vehicles used for emergency or service work upon the Airport where the drivers of the vehicles have obtained permission from the Director for their operation.

B. Private automobiles or trucks shall not be serviced from the gasoline pits provided on the Airport field for the use of aircraft.

C. Rubbish or trash shall not be thrown or allowed to be scattered upon the Airport.

D. Aircraft shall not be taxied at a speed exceeding fifteen (15) miles per hour.

E. Aircraft shall not be supplied with fuel while located in any hangar or other enclosed place or while the motor of the aircraft is running.

F. No pilot other than a commercial pilot with instructor's rating shall, for hire or reward or

gratuitously, teach the art of flying on the Airport and none other than a commercial pilot with instructor's rating shall check out students.

G. All unhoused aircraft must be parked in the space allotted therefor and shall be secured firmly to the ground by ropes and stakes or otherwise when left unattended at night or during weather conditions which indicate the necessity for it. Any aircraft left unattended shall be left entirely at the risk of the owner or operator thereof.

H. The aircraft owner, his pilot or agent shall be responsible for the prompt removal or disposal of wrecked aircraft and the parts thereof to avoid interference with field operations, unless directed to delay such action pending the investigation of the accident.

I. Aviation gasoline, lubricating oil or grease shall not be sold to pilots of itinerant aircraft or aircraft based on this field except by the company or companies holding valid lease agreements with the City for such purposes.

J. No privately owned vehicles of any type shall be permitted on the landing area except by permission from the Director.

K. No person shall smoke, strike a match or produce any flame within fifty feet (50') of any containers of gasoline or other combustible liquid or within any City-owned hangars or repair shops located on or within the confines of the Airport.

L. No person shall engage in the sale of refreshments or any other commodity or service within the confines of the Airport without previously having secured a permit from the Council. No application shall be considered by the Council, however, unless first approved by the Director. (Prior code § 7420.4)

16.44.060 Parking outside designated areas prohibited.

No person operating or in charge of any aircraft shall at any time stop, park or let stand and leave unattended any aircraft in or on any area of the Long Beach Airport which is outside the marked boundaries of any leasehold premises situated at the Long Beach Airport, or outside those areas designated for the parking of aircraft by the Director of Aeronautics, except with prior written authorization of the Director of Aeronautics. The registered owner of any aircraft stopped, parked, or left standing in any area in violation of this Section shall be deemed prima facie responsible for the violation, and subject to the penalty therefor. (Ord. C-5285 § 1, 1977: prior code § 7420.85)

16.44.070 Flying rules.

The Airport is a controlled Airport by authority of the Federal Aviation Agency. All aircraft entering in or emanating from this controlled zone will be governed by regulations of the Federal Aviation Agency and the following rules. No person operating or in charge or any aircraft shall fail, neglect or refuse to comply with the following flying rules of the Airport:

A. When the wind is from the east or south, no aircraft shall traverse any course other than a counterclockwise course.

When the wind is from the west or the north or the northwest, no aircraft shall traverse any course other than a clockwise course.

A flashing amber light located on the roof of the traffic-control tower shall mean that clock wise (to the right) flow of traffic around the Airport is required.

B. All aircraft in approaching the Airport shall fall in the line of traffic until a point has been reached where a landing can be made directly into the wind, and, if practicable, with a straight glide beginning at a minimum of one thousand feet (1,000') from the outer boundary of the Airport.

C. Aircraft approaching for a landing shall circle the airport at a minimum altitude of one thousand five hundred feet (1,500') to observe other traffic unless the pilot receives other instructions from the airport traffic-control operator.

D. Landing aircraft shall have the right-of-way.

E. Aircraft, when taking off from the Airport, shall not make any turn before reaching an altitude of five hundred feet (500').

F. Aircraft shall not take off over hangars, buildings or other obstacles or over groups of spectators unless unavoidable.

G. All aircraft operating on or from the Airport shall have the following minimum equipment: wheel brakes, tail or nose wheel and one-way radio receiver.

H. Aircraft, when carrying United States mail or operating on regular scheduled stops, shall be given the right-of-way when landing and taking off. This rule shall not apply to aircraft in distress.

I. Pilots or personnel in charge of aircraft, in taxiing to and from the runways, shall use the taxiways provided for this purpose.

J. All traffic on the Airport shall be controlled by radio and in emergencies by visual light signals.

K. Takeoffs and landings shall be made into the wind and in the direction indicated by the controlled tetrahedron located west of the administration building unless otherwise directed by the traffic-control operators.

L. Pilots on the ground shall acknowledge light signals from the control tower by working the ailerons or by moving the rudder.

M. Pilots in flight shall acknowledge receiving signals from the control tower by rocking the wings.

N. All aircraft not equipped with radio shall, upon approaching the field, maintain a constant watch on the traffic-control tower located on the roof of the administrative building.

O. No parking on any runway shall be permitted. Aircraft shall not be taxied on to runways without first having received clearance to take off either by radio or visual light signal from the traffic-control tower.

P. The surfaced runways shall be used for all takeoffs and landings, except that they may be made from the turfed areas with permission from the Director or chief air traffic control operator.

Q. During the hours of darkness, suspension of contact flight rules will be indicated by the flashing lights outlining the traffic direction indicator (tetrahedron).

R. During the hours of daylight, suspension of contact flight rules will be indicated by the lighting and operation of the rotation beacon and the flashing lights outlining the traffic direction indicator (tetrahedron). (Prior code § 7420.5)

16.44.080 Light signals.

The following signals for the control and regulation of aircraft shall be established, and every person operating aircraft at this Airport shall obey such signals:

A. When a pilot is taxiing:

1. A red light from a directed traffic-control light means "Stop".

2. A series of red flashes from a directed traffic-control light means that the pilot is to taxi back to the hangar line.

3. A series of green flashes from a directed traffic-control light means "Cleared to continue taxiing".

B. When a pilot is in position to take off:

1. A red light from a directed traffic-control light means "Clear the runway immediately and wait".

2. A green light from a directed traffic-control light means "Cleared for takeoff".

C. When an aircraft is in flight:

1. A green light from a directed traffic-control light means "Cleared to land".

2. A red light from a directed traffic-control light means "Give way to other aircraft and continue circling".

3. During the hours of darkness, a pilot wishing to land shall turn on his landing light when he approaches the Airport unless he has already been given a green light.

4. Pilots shall acknowledge light signals by rocking their wings during the hours of daylight, or blinking their landing lights during the hours of darkness.

D. General warning signal:

1. A series of alternating red and green flashes from a directed traffic-control light shall be used as a general warning signal to advise a pilot to be on the alert for hazardous or unusual conditions. (Prior code § 7420.6)

16.44.090 Rates and fees.

The rates and fees for the uses of or services rendered at the Long Beach Airport shall be estab-

lished by resolution of the City Council. (Ord. C-5407 § 1, 1978: prior code § 7420.7)

16.44.100 Commercial use permit—Contents.

The permit required by Section 16.44.040 shall be in written form subscribed by the Director and by the permittee and shall provide:

A. A statement of the use to be made by the permittee and the portion of the Airport to be used;

B. The dates and approximate duration of such use;

C. The fees to be charged for such use;

D. An acknowledgement that the permittee will pay each daily fee in advance, that the permittee will abide by field rules of the City, by its ordinances, by all regulations of the Federal Aviation Agency and by all laws and regulations of any government or governmental agency having authority over or at the Airport; and

E. Any other matters which the City Manager deems appropriate. (Prior code § 7420.10)

16.44.110 Fuel dispensing permit—Required.

Except as provided in this Chapter, no person shall deliver aviation fuel or lubricants to, or dispense such aviation fuel or lubricants from, at or upon the Airport without first securing a written permit authorized by the City Council and having paid a fee as determined by the City Council by resolution. This Section shall not be applicable to the delivery or dispensing of aviation fuel or lubricants on property leased to any person by the City if the lease authorizes the lessee to deliver or dispense aviation fuel or lubricants on the leased premises. (ORD-10-0014, § 24, 2010; Prior code § 7420.11)

16.44.120 Fuel dispensing permit—Contents.

The permit required by Section 16.44.110 shall be in written form and shall provide:

A. A statement of the use to be made by the permittee and the portions of the Airport to be used;

B. The term of the permit;

C. The fees to be charged for such use and the manner of payment of such fees;

D. Acknowledgement that permittee shall indemnify and save harmless the City from and against any claims, actions or liability of any kind, connected with the use of the Airport by permittee; and

E. Any other matters which the City Manager may deem appropriate. (Prior code § 7420.12)

16.44.130 Administrative regulations.

The Director shall establish reasonable regulations relating to all activities upon the airport. Such regulations shall be subject to the prior approval of the City Council and shall be premised upon the maintenance upon the Airport of sanitary and sightly conditions, orderliness, and the preservation of public health, safety, peace, welfare, and convenience in the use of the Airport for the purpose for which it was established. One (1) copy of the regulations, as approved by the City Council, shall be filed in the office of the City Clerk. Another copy shall be kept posted conspicuously within the administration building. Violation of any such regulation shall be cause for revocation of any permit or license or shall be a breach of any contract relating to the use of the Airport or any of its facilities or property or shall be cause for refusal to permit a continued use of the Airport, its facilities and property until compliance with the regulation is affected. (Prior code § 7420.13)

16.44.140 Special aviation fund.

In compliance with the provisions of Article 4 of Chapter 4 of Part 1 of Division 9 of the Public Utilities Code, there is created and established a special fund to be known as special aviation fund. All money received by the City from the State under the provisions of Public Utilities Code for Airport and aviation purposes shall be deposited into the fund created and established by this Section. The City shall also deposit into the fund from its general fund amounts of money at least equal to the amounts of money to be received from the State and to be deposited into the fund. All mon-

eys in the fund shall be expended exclusively for Airport and aviation purposes and shall be subject to the provision of Article 4 of Chapter 4 of Part 1 of Division 9 of the Public Utilities Code. (Prior code § 7420.14)

16.44.150 Authorized helicopter operations.

Helicopters are authorized to land and takeoff only from the designated operational areas of the Long Beach Municipal Airport and from such helicopter landing facilities, sometimes referred to as heliports, which may be officially designated by the City. It is unlawful to takeoff or land any aircraft at any location in the City other than those specified in this Section except in an emergency where the aircraft cannot safely continue to the nearest authorized landing area. (Ord. C-6037 § 1 (part), 1984)

16.44.151 Authorized helicopter facilities.

A. General helicopter landing facilities are those approved by the City and all other relevant government agencies for uses of the type and nature specified in the permit.

B. Emergency helicopter landing facilities are those established by the City or other governmental entity for police and fire emergency use only. (Ord. C-6037 § 1 (part), 1984)

16.44.152 Helicopter facility permits.

A. Any person or entity wishing to establish a general helicopter landing facility within the City shall first obtain a helicopter facility permit. Applications for such permits may be obtained from and shall be submitted to the Long Beach Fire Department.

B. No permit shall be issued for any general helicopter landing facility which does not evidence approval and compliance with the requirements of the Federal Aviation Administration and the California Department of Transportation. (Ord. C-6037 § 1 (part), 1984)

16.44.153 Development standards.

A. The following minimum requirements shall apply to all general helicopter landing facilities:

1. In every case, application for a permit shall be made to the Fire Department. Any permit granted under the above provisions shall be the number of landings and takeoffs authorized within any twenty-four (24) hour period. This permit does not constitute permission for the applicant to conduct passenger flights for passengers other than the specific person or persons for whom the flight is chartered.

2. The landing area shall have two (2) lines of approach or takeoff and these shall be removed from each other by at least a ninety degree (90°) angle. This approach and takeoff area shall be clear of any obstructions within a glide or takeoff path computed on the ratio of eight (8) horizontal to one (1) vertical.

3. An area of approximately seventy-five (75) by seventy-five feet (75') shall be required. This area shall be clearly defined by means of a substantial barrier or other method providing physical restraint to prohibit the entrance of unauthorized persons into the landing area. Additional area may be required depending on the area and any additional hazards.

4. Adequate personnel shall be provided to police the landing area to assist in restraining unauthorized persons from entering the landing area.

5. A minimum of two (2) 24OBC type dry powder extinguishers shall be provided on the ground adjacent to the landing area. Personnel trained in the use of such extinguishers shall be in attendance.

6. Some type of indicator shall be provided to show wind direction.

7. Insurance as prescribed in regulations issued by the City Manager pursuant to Section 2.84.040.

8. The Federal Aviation Administration (FAA) shall be advised concerning each landing, and compliance with air traffic control directions is required.

B. In addition to the above, all requirements of Article 24 of the Uniform Fire Code and Chapter 2.1 of Title 21 of the California Administrative Code shall be compiled with. (Ord. C-7934 § 23, 2004; Ord. C-6037 § 1 (part), 1984)

CHAPTER 16.47 OFF-AIRPORT CAR RENTALS

16.47.010 Off Airport car rental access.

Any person or entity desiring access to the Airport for the purpose of conducting rental car business operations, either directly or indirectly, shall first obtain from the City a commercial use permit prior to conducting any such business on Airport property. (Ord. C-6508 § 1 (part), 1988)

16.47.020 Term of permits.

Commercial use permits for off Airport car rental companies will be issued annually for a twelve (12) month period within sixty (60) days after the application has been submitted to and approved by the Airport Manager. (Ord. C-6508 § 1 (part), 1988)

16.47.030 Application.

The City may issue a commercial use permit only upon receipt of a signed and verified application from the rental car business owner containing the following information, agreements and proof:

A. The names and addresses of every person or corporation having an interest in the business.

B. For a corporate owner not traded publicly, the names and addresses of every person having an interest in the business.

C. Insurance as prescribed in regulations issued by the City Manager pursuant to Section 2.84.040.

D. The make, model, color, identification number, and motor vehicle registration number of all vehicles to be operated on Airport property.

E. Proof of financial responsibility in the form of cash or a bond, as prescribed in regulations issued by the City Manager pursuant to Section 2.84.040.

F. A written agreement to pay to the City for the duration of the permit eight percent (8%) of all gross business receipts derived from the rental of vehicles to passengers picked up at the Airport, payable on the twenty-fifth day of each month for the preceding month's receipts. Without waiving any other right of action available to City in the event of delinquency by permittee for a period of thirty (30) days or more in its payment to City of the above compensation, and without waiving the interest specified herein upon acceptance of said payment, permittee shall pay to City interest thereon at the rate of return on City's investment portfolio for the previous month from the date such item was due and payable until paid. Interest shall be compounded monthly until the debt is paid.

G. The names and job titles of local management personnel, as well as all employees engaged in the operation of vehicles to be operated on Airport property.

H. A written agreement agreeing to obey and follow all standards and regulations published by the City or its Airport Manager.

I. Proof of all business and motor vehicle permits required by local, State and federal regulations.

J. A written agreement to submit written proof to the Airport Manager of all gross receipts at the time payment is due, accompanied by a statement certified by an officer of the company attesting to the accuracy of payments due the City.

K. A written agreement to authorize the City, its agents or employees, to audit all of applicant's business records and accounts and to make said records and accounts available.

L. A written agreement that vehicles will stop or wait on Airport property only while in the process of waiting for, loading and unloading customers with bona fide reservations. Upon request by an authorized representative of the City, the driver of a vehicle (or company personnel who may accompany the driver) shall provide said representative the name of such reserved customers and other information applicable to the reservation. Drivers of vehicles (or company personnel who may accompany the driver) shall be prohibited from solicitation of business in any manner whatsoever upon the Airport. The operation of vehicles will be specifically limited to the picking up and delivery of reserved customers.

M. A written agreement to park only in the parking and pick up area designated by the Airport Manager.

N. A written agreement to indemnify and hold harmless the City, its officers, employees, boards and commissions, from any and all claims whatsoever related to the commercial use permit and proof of insurance for such contractual liability. (Ord. C-7934 § 24, 2004; Ord. C-6508 § 1 (part), 1988)

16.47.040 Limitations of permit.

A commercial use permit will permit the business to pick up customers at the terminal in a designated and signed van, or other motor vehicle, but no nontenant rental car business shall operate more than two (2) designated motor vehicles on Airport property at the same time when both vehicles are needed to pick up or deliver customers to the Airport. Such businesses may have more than two (2) vehicles on Airport property at the same time if a need therefor is demonstrated to the Airport Manager and the Airport Manager grants prior written permission therefor to such business. (Ord. C-6508 § 1 (part), 1988)

16.47.050 Prohibition of activities on Airport property.

A commercial use permit shall not permit such business to rent motor vehicles on Airport property, to have an office or station on Airport property, to park rental cars on Airport property, or to operate rental cars on airport property; and all of these actions and activities are expressly prohibited. (Ord. C-6508 § 1 (part), 1988)

16.47.060 Revocation of permit.

A commercial use permit may be revoked by the City for cause at a public hearing before the Airport Manager upon five (5) days notice. "Cause" includes, but is not limited to, a breach of any of the agreements herein, including a failure to make timely payments, violation of City standards or regulations, violation of the laws of the federal government or of the laws of any State, and any other act or omission of the permittee adversely affecting Airport business operations or posing a danger to the public health, safety or welfare. "Cause" also includes financial insolvency or instability, moral turpitude and the lack of good character. In the event a permit is revoked, all sums owed the City shall immediately become due and payable, and no fees or charges shall be refundable by the City. A commercial use permit may, likewise, be denied for a cause similar to that for which it could be revoked. In addition, a commercial use permit may be denied or revoked when, in the opinion of the City, such action is necessary to protect the public health, safety or welfare, or to preserve the financial welfare of the Airport. In the event the permit is denied, the applicant shall be given written notice of the reasons and shall have the right to a hearing before the Airport Manager. (Ord. C-6508 § 1 (part), 1988)

16.47.070 Processing fees.

There shall be a charge of one hundred dollars ($100.00) payable in advance to defray administrative costs of a permit request for each permit. This cost is not refundable in the event the permit application is rejected or in the event the permit is revoked. (Ord. C-6508 § 1 (part), 1988)

CHAPTER 16.48 CEMETERY

16.48.010 Name.

The property owned, held, controlled, and managed by the City for cemetery purposes shall be known as the Long Beach Cemetery. (Prior code § 7440)

16.48.020 Operation regulations.

The management, operation, upkeep and control of the cemetery shall be under the joint direction of the Director of Parks and the City Engineer, subject to the provisions of the laws of the State relating to burials, the Charter of the City and this Chapter. The Director of Parks shall supervise the digging of all graves and the interments therein, and shall have charge of sodding, grading and seeding thereof. No interment of any body shall be permitted unless it is accompanied by a burial or cremation permit issued pursuant to the laws of the State, and from the effective date of the ordinance codified in this Chapter, no monu-

ments or tombs shall be placed in the cemetery. All grave markers shall be of a flat type and placed at lawn or ground level, except that a marker may be established on a grave in any lot, half lot or quarter lot, which marker is essentially a duplication in design of any marker established on the lot, half lot or quarter lot on or prior to November 14, 1943. No other improvements shall be placed in the cemetery without the written consent of the Director of Parks. Upon being presented with any permit in connection with the burial of any body or the ashes there of, the Director of Parks or his representative shall sign the same, endorse upon it the date of interment, and transmit the permit, so endorsed, to the Health Officer of the City within ten (10) days from the date of interment. He shall also keep a record which shall contain a complete account of all interments that take place in the cemetery, a description of the particular grave, the name, age, color and sex of the person interred, and the date thereof. (Prior code § 7440.1)

16.48.030 Official map.

That certain map designated as Map No. E45, prepared and filed in the office of the City Engineer on January 13, 1936, approved by the Council on October 10, 1939, and recorded on October 13, 1939, in the office of the County Recorder of Los Angeles County, as Map No. 814-R, constitutes the Official Map of the Long Beach Cemetery. A copy thereof shall be kept on file at the cemetery for inspection by any person interested therein. The map may be amended from time to time by resolution of the Council. (Prior code § 7440.2)

16.48.040 Use of lots restricted.

No lot or part thereof within the boundaries of the Long Beach Cemetery shall be used for any other purpose than the interment of the human dead, and all owners of such lots or parts of lots are subject to the provisions of all applicable laws of the State, this Chapter, and to such rules, conditions, limitations, regulations, and ordinances or amendments to ordinances as the Council may from time to time make or adopt for the government, improvement and embellishment of the cemetery. (Prior code § 7440.4)

16.48.050 Burials and removals.

All graves shall be opened and closed under the supervision of the Director of Parks and shall not be less than five feet (5') in depth. Only one (1) interment shall be allowed in a single grave, except in case of a mother and infant child, or twin children, or two (2) children buried at the same time. All interments in lots or parts of lots shall be restricted to members of the family or relations of the owners thereof, except by written consent of the owner and written consent of the City Engineer, such consent to be filed in the office of the City Engineer, and owners of lots or parts of lots shall not allow interments to be made therein for remuneration, nor shall they sell any lot or part thereof in the cemetery without the written consent of the City Engineer. Terms of sale of lots or parts of lots shall be cash, and no lot or part of lot shall be regarded as sold until fully paid for. If parties make interments before paying in full for their lots, the City reserves the right to remove the bodies to the single grave allotment provided for in this Chapter, and to sell the lot or part thereof to other parties, and no sale or transfer of a burial lot or part thereof shall be valid until the same has been recorded in the office of the City Engineer in a book kept for that purpose and a fee as determined by the City Council by resolution is paid. No interment, disinterment or removal shall be made in the cemetery without an application being first made to the City Engineer, together with the required fees therefor, and no body shall be taken from the cemetery without a permit for disinterment and removal required by the laws of the State. The City Engineer shall keep an accurate record of all removals made. (ORD-10-0014, § 25, 2010; Prior code § 7440.5)

16.48.060 Fees.

In addition to any other charges, charges for the following activities shall be set by resolution of the City Council:

A. For opening graves for any purpose;

B. For burial of ashes in a container approved by the Director of Public Works and supplied by the person in charge of such burial; and

C. Any other fees deemed necessary.

All burial boxes involved shall be made with cement which shall first be approved by the Director of Public Works, such boxes to be furnished by the person in charge of the burial. (Ord. C-5807 § 1, 1982: prior code § 7440.6)

16.48.070 Single grave allotment and indigent burials.

A portion of the cemetery grounds shall be set aside as a single grave allotment, and another portion thereof shall be set aside for free burial of the remains of such persons who have no relatives, nor friends who are legally liable for the costs of the burial under the laws of the State, and who were indigent at the time of their demise. A permit for burial in the free burial ground shall only be issued in proper cases, after an investigation by the City Engineer and a determination that the free burial is warranted. (Prior code § 7440.7)

16.48.080 Prohibited acts.

A. No person shall enter the cemetery with any dog or other animal, carry any firearms upon his person, or enter the grounds of the cemetery at any time between one-half (1/2) hour after sunset and one-half (1/2) hour before sunrise without the written permission of the Director of Parks. No children shall be admitted unless accompanied by some adult person who shall be responsible for their conduct.

B. All persons engaged in the placing of grave markers or other structures are expressly prohibited from scattering materials on adjoining lot or walks, or leaving the same on the grounds any longer than is necessary for the completion of the work, and such persons must obey the directions of the Director of Parks in connection therewith. (Prior code § 7440.8)

CHAPTER 16.52 HISTORIC LANDMARKS

16.52.010 Jergins Trust Building, Pacific Coast Club, Villa Riviera, First Congregational Church, Rancho Los Alamitos and Rancho Los Cerritos.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following buildings as historical landmarks in the City:

A. The Jergins Trust Building.

1. Location, description and reasons for designation. Located at 120 East Ocean Boulevard, the structure, known first as the Markwell Building, was started in 1917 and the first six (6) floors were completed in 1919. It received its present name when the Jergins Oil Company bought it, after which the remaining floors were added in 1929. It served various purposes during the years, housing offices of Standard Oil, a theater, several stores, municipal and superior courts, law offices and departments of municipal and County governments. It was frequently sold and resold, its leases sought until conditions in the 1950s made them less desirable. Yet the building has served as a Long Beach landmark, offering with its companion on the other side of the intersection a grand view looking down Pine Avenue toward the ocean. Its share in the history of Long Beach has been considerable, for historic cases have been discussed there, and won or lost in its courts, and business transactions have been consummated within its offices influencing the fate of Long Beach.

2. General Guidelines and Standards for any Changes. The following guidelines and standards recommended by the Cultural Heritage Committee are adopted:

The Committee would resist any changes in the exterior facade of the Jergins Trust that would interfere with the colorful "cake-like" art stone carvings that appear on the top floors of the building. We understand and were in agreement with the removal of the State The-

atre marquee in that the present owners of the building are endeavoring to find a new use for that area of the structure. Cognizant of the problems for finding a new use for theaters, the Committee is aware that the owners hope to attract a banking facility within this area of the building. The Committee found upon a field trip to the site that the original arcade below the building is in excellent condition and would resist any attempt to do away with it; we would like to see the arcade reopened and used as it was originally used as a market center and boutique alley. We would like the paneling in the upstairs law offices preserved should the present lessees leave (though that is doubtful). We further recommend that the penthouse terrace be restored and used as an attraction to the building. We are interested in meeting the present owners and encouraging them in any restoration efforts.

B. The Pacific Coast Club.

1. Location, Description and Reasons for Designation. Located at 850 East Ocean Boulevard, the Club was founded in 1923, with the merger of the Petroleum Club and the Coast Athletic Club. Groundbreaking for a building started on June 9, 1925, and the cornerstone was laid on September 4, 1926; the Club was formally opened on October 26, 1926. The architects were Curlett and Beelman, although several individuals were involved with the structure and its decor. The Grand Hall with its decorations, the chandelier and the library were notable features. It was built by C. T. McGrew & Sons Construction Company with one son a charter member. The same company built the Press Telegram Building. At the dedication, President David Smith officially opened the club for hundreds of charter members, but he resigned within the year and the facility was conveyed to the Los Angeles Athletic Club in 1928. In 1961, the building was turned over to the Pacific Coast Club, Inc., with a new president, Wayne Ferrell, but seven (7) months later the club was bankrupt. The building survived the earthquake with but a few cracks and survived vandalism and time to presently represent a monument to an era and a glory of the City of Long Beach.

2. General Guidelines and Standards for any Changes. The following guidelines and standards recommended by the Cultural Heritage Committee are adopted:

The Committee strongly urges that every attempt be made to restore the Pacific Coast Club to its former grandeur, preserving the exterior, removing the existing white grill work which distracts from the beauty of the structure and eventually allowing for more parking in the rear of the property so that the building may enjoy maximum use. We would not oppose underground parking or an attractive structure above ground. We would like the health facilities maintained, the swimming pool restored and the beach area utilized as it once was by club members. We would encourage multi-use for the building, including a health club, business offices, apartments and restaurants. In line with these recommendations, we would like to see the Grand Hall decorations restored, the chandelier and library restored and all other decorative detailing that made this building so outstanding. Although we have not been able to gain access to the building, we understand that it is not beyond restoration, so we will encourage all efforts in that respect and will expect to be consulted on all architectural designs, inner structural changes and any exterior changes. We would urge that the building be public in spirit for all to enjoy.

C. The Villa Riviera.

1. Location, Description and Reasons for Designation. Located at 800 East Ocean Boulevard, the Villa Riviera Hotel was constructed in 1929, second in height at that time only to the Los Angeles City Hall. Architect Richard D. King won a grand prize at an international contest for the design of the sixteen-story building. Its costs of construction were over two million dollars ($2,000,000.00), at that time a large sum in build-

ing expenditures. Its architecture savors of the majestic Tudor Gothic, with a marked resemblance to the Italian and French Renaissance, all blended into a composite grace of line that overshadows any single decorative detail. At one time, Joseph M. Schenck of Twentieth Century-Fox and Norma Talmadge, then his wife, owned the hotel. It survived the earthquake with only plaster cracks which were easily repaired. With its height and its command of a view over the ocean to Catalina and over the City, the Villa Riviera is an eye-catching object for Long Beach.

2. General Guidelines and Standards for any Changes. The following guidelines and standards recommended by the Cultural Heritage Committee are adopted:

> The exterior of this building should be maintained at any cost! The gargoyles, intricate art stone carvings and other outer decorations should be reinforced should they show signs of weakening. Any exterior painting or reroofing should be done only after Committee approval as to color and material. We would encourage the present color tones and would discourage a change of color for this towering pillar which stands as a gateway to the Ocean Boulevard scenic route currently in the planning process. Since the apartments are privately owned, the Committee will not make any recommendations beyond preserving the lobby, its fixtures and decorations.

D. The First Congregational Church.

1. Location, Description and Reasons for Designation. Located at Third Street and Cedar Avenue, the church was built in 1914 by C. T. McGrew of Long Beach; the architectural design was by H. M. Patterson of Los Angeles. Its brick exterior is Italian Renaissance and its interior is noteworthy for its stained glass, paneling and wooden beams. It has been a landmark of Long Beach since the 1920s and a scene of notable social and cultural events. It has served as a memorial to Mr. and Mrs. Bixby who were so important for its construction and to Long Beach. The Italian Renaissance style conforms meaningfully with the contemporary surroundings of new structures. Although later additions and alterations have been made, these have been kept in close relation to the original style. It withstood the 1933 earthquake well; recent changes in building code regulations have forced the congregation to agree to the demolition of the educational facility and to construct new quarters. In all, the church itself as a cultural and social institution, the integrity of its architecture and decor, and its place in the City merits preservation as a landmark.

2. General Guidelines and Standards for any Changes. The following guidelines and standards recommended by the Cultural Heritage Committee are adopted:

> The Committee is aware that further interior changes are in order for this church so that it may present building code requirements. Regretfully, we understand that the existing stairwells - mahogany - will have to be replaced or covered. We would urge that the Planning and Building Department once more consider this recommendation in that we are aware that in some instances exceptions have been made for historical buildings. We feel the church has done an outstanding job in its own preservation effort. e.g., utilizing Pilgrim Hall materials in new construction. We would like to work with Dr. David Reed and his committee in any new restoration efforts in line with a new building presently under consideration adjacent to the church building. Our purpose here is only advisory and with the intent of offering any service we might have that would benefit the church. We would not like to see any further structural changes either in the outside or interior of the building.

E. Rancho Los Alamitos.

1. Location, Description and Reasons for Designation. Located at 6400 East Bixby Hills Road, situated on the prehistoric Indian village site, known as Puvung-na, Rancho Los Alamitos is an excellent example of a late nineteenth century working ranch. The adobe walls, constructed by Juan Jose Nieto in 1806, serve as the interior foundation of

the present day ranch home. Rancher Don Abel Stearns added a wing to the adobe home in 1842, to serve as his vaqueros' bunkhouse. After John Bixby became owner, this wing was converted to use as kitchen and servants' quarters. The last additions to the ranch house were made by his son, Fred Bixby, in 1925. In addition to its extensive gardens, buildings surrounding the house include horse barns, a working blacksmith shop, cow feeding and milking barns, chuck wagon, and many items of machinery, used in turn-of-the-century farming. This house is one of the few remaining structures in Southern California which began its existence during the Spanish colonial days. Its heritage represents the Spanish, Mexican and American eras of California history.

2. General Guidelines and Standards for any Changes. The following guidelines and standards recommended by the Cultural Heritage Committee are adopted:

Located in the heart of one of the City's most prestigious residential areas, Bixby Hill, Rancho Los Alamitos lies nestled amidst seven and one-half (7½) acres of gardens and outer buildings that were part of its early life as a working ranch. The last additions were made to the house in 1925: none have taken place since. Every effort has been made to restore the interior dwelling to reflect life as it was when the Bixby family occupied the ranch house. The Committee favors retention of the existing seven (7) acres of land to perpetuate the life of the site, to continue the upkeep of the existing gardens for tourists, to encourage tours of the outer buildings as an educational resource and to maintain the existing structure as an example of early ranch life in California. We would not anticipate further structural changes nor would we recommend them at this juncture. Should a necessity arise for alteration, the Committee would like to be consulted before any changes take place.

F. Rancho Los Cerritos.

1. Location, Description and Reasons for Designation. Located at 4600 Virginia Road, the Rancho's history represents the Mexican and early American period of Long Beach history. It was the site of a Tibahangna Indian village where Manuel Neito constructed ranch quarters for the original 167,000 acre land grant from Governor Pedro Fages in 1784. In 1843, Jonathan Temple purchased the 27,000 acre Rancho Los Cerritos from the Neito heirs. In the early 1860s, severe droughts and floods decimated the operation of the Rancho and Temple sold it to the Flint Bixby and Company in 1866 for $20,000 in gold. Jonathan Bixby, Llewellyn's brother, managed the ranch until 1881 and the old adobe remained empty until 1931. In 1929, Llewellyn Bixby, Jr., nephew of Jonathan, purchased the ranch house and grounds around it and completed a massive renovation in 1931. In 1954, the City assumed responsibility for its preservation. The ranch is one of the few remaining examples of the early California Monterey Colonial Style, and its ownership history represents the development of the area from its earliest origins to the present.

2. General Guidelines and Standards for any Changes. The following guidelines and standards recommended by the Cultural Heritage Committee are adopted:

Almost hidden from view at the end of a long, curving road, Rancho Los Cerritos and its beautiful hacienda and porch can be seen through the gate near the parking entryway in the heart of the Virgina Country Club residential district. The Committee recommends that the gardens and grounds of the Rancho be continually maintained as a strolling area for tourists and those persons who work at the Rancho itself. We recommend that the terraces and rear courtyards be upgraded since they are primarily walking areas, e.g., the brick walkways be maintained and the grass around the fountain area cared for. Regarding the interior, we would resist any structural changes, encouraging rather the maintenance of the beautiful floors, beam ceilings and library. The outer rooms around the courtyard are excellent historical areas offering a look at a world

long gone. We would encourage preservation of the exhibit materials and would, of course, oppose any outer structural changes, e.g., roof materials, unless consulted as to the necessity thereof. (Ord. C-5479 § 1, 1979)

16.52.020 Cooper Arms Apartments.

Pursuant to the provisions of Chapter 2.63, and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City:

The Cooper Arms Apartments.

A. Location, Description and Reasons for Designation. Long Beach entered upon the "million-dollar-a-month" building era in 1921. By 1923, that figure had doubled. That year construction commenced on the Cooper Arms Apartments, one of several skyscraper apartment houses that changed the skyline of Long Beach from a quiet village to that of a metropolitan City.

Located at 455 East Ocean Boulevard, the twelve-story own-your-own, comprising one hundred fifty (150) apartments, was built of reinforced concrete and tile upon a lot that measured one hundred by two hundred two feet (202'), allowing space for a garden that was the size of a regular City lot.

The property was owned by Larkin Cooper whose home and guest house once graced the present day site of the Fidelity Federal Plaza. Cooper gathered together the most prominent business figures of Long Beach to manage the Cooper Arms project. Among them, Nelson McCook, president and founder of the California National Bank; Colonel Walter J. Horne, partner in Van Lester & Horne, a real estate firm that developed downtown business blocks and residences; Vat Lester, Horne's partner whose successful real estate methods earned him the pseudonym "The Bungalow Merchant;" William Prisk, founder of the Independent Press Telegram; Dr. W. Harriman Jones, surgeon and Director of the City National Building Company, and many others.

Their goal was to build the most luxurious cooperative apartment house in Long Beach. Early testimonials indicate they succeeded, comparing the Cooper Arms to the Biltmore in downtown Los Angeles and the Huntington Hotel in Pasadena.

The project was the sixth cooperative apartment house in Long Beach. Prices ranged from three thousand eight hundred dollars ($3,800.00) to seventeen thousand dollars ($17,000.00) per unit. The complex offered its tenants a wide variety of amenities: A Spanish loggia, domed ballroom and solarium atop the roof including a glass enclosed cafe; imported Italian terraza floors in the lobby and drawing room/lounge; art deco paneling, bronze doors and a number of other fine interior architectural details which enhanced the lobby and hallways. The basement provided receiving and storage rooms with individual trunk rooms; showers, lockers, dressing rooms and baths for bathers; billiard, smoking and recreation rooms were provided as was a driveway for autos at the rear of the building.

Exterior architectural features such as curved casement windows, columned balconies and carved artstone scrolls along the roofline all contribute to the art deco styling of the 1920s, so prevalent to Long Beach.

The Cooper Arms' historic associations lie in its status as one of the first cooperative ventures in apartment house living in the West; its relationship to the prominent businessmen of the day, and its value as an example of 1920s architecture in both its outer facade and interior detailing. Its twelve-story facade, as noted earlier, played a significant part in the changing face of Long Beach. The building's early days were distinguished by a lifestyle that once thrived in Long Beach and which may one day return. In that regard, the Cooper Arms is unique.

The obvious care and sense of responsibility of the owners of this building, those persons who own their apartments, is reflected throughout the structure in its orderly appearance and in the exceedingly expensive effort now being undertaken to bring the building up to meet Long Beach building codes.

B. General Guidelines and Standards for any Changes. The following guidelines and standards recommended by the Cultural Heritage Commission are adopted:

This twelve-story building is in remarkably fine condition. The building should remain intact, its interiors preserved, its first floor lounge/drawing room be carefully preserved to ensure the beautiful art deco decorations, and efforts be made to maintain the bronze elevator doors, marble floors, brass fittings and fixtures and graceful casement windows that are found throughout the interior building.

The garden already in good repair, should continue as a green area, since it is an outstanding feature of the building, almost an architectural detail in itself. (Ord. C-5523 § 1, 1979)

16.52.030 Drake Park/Willmore City Historic Landmark District.

Pursuant to the provisions of Chapter 2.63, and with the recommendation of the Planning Commission, the City Council designates the area known as Drake Park/Willmore City as a Historic Landmark District. The boundaries of the Drake Park/Willmore City Historic District are as follows:

A. North. From Park Court one hundred feet (100') south of Anaheim Street, continuing west to the west side of the parcel at 1249 Loma Vista Drive; crossing to the south side of Loma Vista Drive at Virginia Court; continuing west to the property located at 1191 Loma Vista; then crossing to the north side of Loma Vista Drive to the railroad right-of-way and continuing west; then going south on the western side of the property located at 1077 Loma Vista to the north side of Loma Vista Drive.

West. Continuing south and curving around Loma Vista Drive to Oro Court; south on Oro Court to Seventh Street; east on Seventh Street to Magnolia Avenue; south on Magnolia Avenue to Fifth Street; west on Fifth Street to Crystal Court; north on Crystal Court to Sixth Street; west on Sixth Street to Nylic Court; south on Nylic Court to Fifth Street; east on Fifth Street to Daisy Avenue; south on Daisy Avenue for fifty feet (50'); then east to Crystal Court; south on Crystal Court to the north side of Fourth Street.

South. The north side of Fourth Street from Crystal Court to Magnolia Avenue; then south to fifty feet (50') south of the south side of Fourth Street (at the southern boundary of 356 Magnolia Avenue); then east to Cedar Avenue.

East. From fifty feet (50') south of Fourth Street, north on Cedar Avenue to Fifth Street; then east to Park Court; continuing north on Park Court to one hundred feet (100') south of Anaheim.

B. The complete location, description and reasons for historic landmark district designation are more fully contained in uncodified Section 2 of Ordinance No. C-7538. (Ord. C-7538 § 1, 1998: Ord. C-5928 § 1, 1982: Ord. C-5566 § 1, 1980)

16.52.040 Long Beach Community Hospital.

Pursuant to the provisions of Chapter 2.63, and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City:

The Long Beach Community Hospital.

A. Location, Description and Reasons for Designation. Located at 1720 Termino Avenue, the Long Beach Community Hospital first opened its doors to the public on July 15, 1924, and has since remained open twenty-four (24) hours a day, every day, at the same location.

Community's existence is due to the efforts of concerned citizens who saw the need for a non-profit hospital serving the eastern section of the City. A public fund drive, a grant of civic funds and a one dollar a month lease of City property culminated in the construction of the Spanish Colonial style building. The site chosen was a hill surrounded by farmland located at that time on the outskirts of Long Beach.

During the first five (5) years of its existence, the one hundred twenty-five bed hospital was plagued with financial problems. Fillmore Condit, hospital founder and the first president of the Board of Trustees, frequently accompanied the

Administrator to the bank to make up the payroll from his own funds. During his lifetime Mr. Condit (who also served a term as the City's Mayor) donated more than one hundred thousand dollars ($100,000.00) to Community Hospital.

At 5:55 p.m., March 10, 1933, Long Beach was shaken by an earthquake with a magnitude of 6.3 on the Richter scale. Under the guidance of Sarah A. Ruddy, RN, Hospital Administrator, Long Beach Community Hospital continued to serve the community, without lights, telephone service, water or heat, in tents on the hospital grounds. A total of one hundred twenty-five injured were treated the first night, ninety (90) of them hospitalized. Damage to the hospital was so slight that patients were back in the hospital within twenty-four (24) hours. An emergency clinic, set up for twenty-four (24) hours a day the next ten (10) days, treated more than five hundred (500) patients who were casualties of the quake.

In 1958 the unique Hatfield Unit with its garden views was created and named after Howard Hatfield, the Administrator of that decade. With fifty (50) beds it was the first convalescent unit ever built within the confines of a nonprofit private institution in California.

Following the population explosion of the 1950s, the community of Long Beach rallied to raise funds for local hospitals. As the direct result of the local bond issue, Community Hospital dedicated a new east wing in 1959 under the administration of Walter Oliver. A total of one hundred forty-eight (148) beds and thirty-four (34) bassinets were added bringing the licensed capacity to today's three hundred (300) beds.

Today the two-story and basement structure of the original 1924 building contains the main entrance to the hospital and fairly well conceals the 1959 addition. A landscaped courtyard is entered through an arcade. Arcades also flank each side of the courtyard. A fountain, flowers and trees add to the historic scene created by stuccoed walls and red tile roofs.

Despite work done in 1958 bringing the building up to the then existing structural codes, Community Hospital is today involved in a major reconstruction project to bring the building up to current, more stringent codes. An investment of an estimated twelve and one-half million dollars ($12,500,000.00) for a new emergency department and restructuring of the original building must be made.

Structural reinforcement requires a unique design solution involving slant-drilled underpinning, shear walls, chasing exterior walls, and guniting. These efforts mean that Community Hospital will retain the distinction of being the only Long Beach hospital to operate from its original structure.

2. General Guidelines and Standards for any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Feb. 1978) are incorporated by reference.

The following guidelines and standards recommended by the Cultural Heritage Commission are adopted:

Exterior. The Termino Avenue facade is the special architectural importance of this building and therefore should be preserved. A certificate of appropriateness shall be granted for changes delineated on the construction drawings stamped by the State Department of Health Facilities Planning on February 1, 1979, and for normal maintenance and enhancement of the facade for the purposes of preservation and addition of architectural detail in keeping with the Spanish architecture.

Proposed changes to the other elevations of this structure shall be granted a certificate of appropriateness only if the changes would be in keeping with the architectural style and design and color motifs of the building. (Ord. C-5647 § 1, 1980)

16.52.050 Scottish Rite Cathedral.

Pursuant to the provisions of Chapter 2.63, and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City:

Scottish Rite Cathedral.

A. Location, Description and Reasons for Designation. Location: 855 Elm Avenue. In 1924

Aubrey Rivers Parks announced his dream and plan for the Scottish Rite Temple. The Scottish Rite Bodies were to have their own home at the northwestern corner of Ninth Street and Elm Avenue.

The building was completed in August 1926 at the cost of five hundred thousand dollars ($500,000.00), including original furnishings and equipment. The fully air conditioned Long Beach Scottish Rite Cathedral contains forty thousand eight hundred (40,800) square feet of floor space, a new fifty thousand dollar ($50,000.00) pipe organ and portable console, twenty-seven (27) stage sets and ninety-seven (97) drops valued at three hundred fifty thousand dollars ($350,000.00), stage lighting, closed circuit television and sound system in the Sanctuary. This landmark is a place for higher Masonic learning and attracts many instructors.

2. General Guidelines and Standards for any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Feb. 1978) are incorporated by reference.

The following guidelines and standards recommended by the Cultural Heritage Committee are adopted:

Exterior. The Elm Avenue facade is the special architectural statement of this building and therefore should be preserved. Normal maintenance of the facade for purposes of preservation shall receive a certificate of appropriateness. Any proposed alterations, remodeling or modernization of the Elm Avenue facade, however, shall be granted a certificate of appropriateness only for public safety reasons after adequate investigation has been made of alternate methods of correcting the safety hazards.

Proposed changes to the other three (3) elevations of this structure shall be granted a certificate of appropriateness only if the changes would be in keeping with the architectural style and design and color motifs of the building.

Interior. Two (2) interior spaces have extraordinary design importance and contribute significantly to the building as a cultural resource. The spaces are the entrance lobby and the main auditorium. These are richly decorated with hand-painted wall and ceiling designs which should be preserved. Certificates of appropriateness should be issued for normal maintenance of these spaces, including the wall and ceiling decorations, for the purposes of preservation in their present form.

Proposals for renovation, remodeling, or otherwise changing these spaces, including painting over the wall and ceiling decorations, shall not be granted a certificate of appropriateness except for public safety reasons. (Ord. C-5648 § 1, 1980)

16.52.060 Insurance Exchange Building.

Pursuant to the provisions of Chapter 2.63, and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City:

Insurance Exchange Building.

A. Location, Description and Reasons for Designation. Located at 205 East Broadway, this architecturally significant building was constructed at a cost of four hundred thousand dollars ($400,000.00) during the Long Beach building boom of the 1920s. It is art deco in style with noteworthy use of ornamental plaster and tile work.

Way and Lorne Middough, prominent businessmen and civic leaders from 1919 until their deaths in 1966 and 1963 respectively, commenced construction in late 1923. Their shop, "The Boys Shop," at 126 West Broadway was too small for their purposes. The original plan was to build a two-story structure to accommodate their needs. They were asked to raise the height to eight (8) stories to accommodate the small claims and superior courts. This they did.

The bas-relief, originally around the entire front of the structure, featured children's sports scenes. The tiles and friezes along the architectural lines of the building complements the basreliefs. Three and three-fourths (3¾) of these scenes remain as original. The Middough brothers were actively

involved for boys and their needs. A gymnasium was included in the building because of this concern for boys and their love of sports.

The building was completed in 1925. It was featured in newspaper articles and magazine supplements in the 1920s and 1930s as one of the outstanding new landmark buildings of downtown Long Beach.

The courts moved to the Jergins Trust Building when the two (2) additional floors were added to that building in the late 1920s. Without a guaranteed income for the building, the financial problems of the 1929 crash made it necessary to sell the building.

In 1931 the building was sold to Wayne H. Fisher, a Los Angeles developer. From this time on the building became known as the Insurance and Exchange Building.

In 1932 the name of the Boys Shop was changed to Middough Meier and was operated by Way Middough and R. Troy Meier.

During the war, the building was used as a mess hall for the Armed Forces.

The present owner of the building, Mr. James Compton, purchased the building in 1965.

B. General Guidelines and Standards for any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Feb. 1978) are incorporated by reference.

The following guidelines and standards recommended by the Cultural Heritage Committee are adopted:

Exterior. The facade and art deco style and ornamentation are the architectural importance of the building. The remaining bas-relief scenes should be preserved, the ornamental tiles, columns and friezes should be preserved. Normal maintenance of the facade for purposes of preservation shall receive a certificate of appropriateness.

Interior. The entrance lobby to 205 East Broadway is significant in its art deco designs. These designs should be retained and preserved. Certificates of appropriateness should be issued for normal maintenance of this space, including the wall, floor and ceiling designs, for the purposes of preservation in their present form.

The columns and decoration and ceiling designs on the second floor should be preserved. A certificate of appropriateness should be issued for normal maintenance of these columns and ceiling designs for purposes of preservation. (Ord. C-5649 § 1, 1980)

16.52.070 Recreation Park golf course clubhouse.

Pursuant to the provisions of Chapter 2.63, and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City:

Recreation Park Golf Course Clubhouse.

A. Location. Description and Reasons for Designation. Located at 5000 East Anaheim Street, the Recreation Park golf course clubhouse is one of the few civic buildings remaining and represents the only recreation building constructed prior to 1933. The total area, including golf courses and Recreation Park, was purchased from the Alamitos Land Company (two hundred sixty (260) acres) and the San Gabriel River Improvement Company (one hundred forty (140) acres) with a bond issue of nine hundred thousand dollars ($900,000.00) in 1923. Earlier a golf course existed on the site, and that club became the Virgina Country Club with the termination of the lease. A clubhouse was constructed in 1925 which was moved across Seventh Street to become the clubhouse for the new nine-hole course constructed in 1929. The present Recreation Park golf course clubhouse was constructed in 1929 for a cost of fifty thousand dollars ($50,000.00).

In 1925 the course held an annual open which continued until suspended during the Depression (and also in World War II). Winners of the Long Beach Open included: Bill Mellhorn, Lee Diegel, Tommy Armour, James Kirkwood, Walter Hagen and Olin Dutra. Associated with the clubhouse are many festivities related to the course and to civic events. A large room was used for dances and

social events which is currently in excellent condition, except that the gas jets have been removed from the fireplace.

The golf course was reconstructed in 1935, dedicated in May, which conforms roughly to its present configuration. It became a longer course (six thousand five hundred (6,500) yards, par seventy-two (72)) and more fitting for PGA play.

The club was under the Long Beach Recreation Commission from the formation of this body in 1929 until after World War II when there was a reorganization. The chairman of this Commission for many years was an outstanding civic leader, Clyde Doyle; and prominent individuals have been members of the Commission during the years. Clyde Doyle was a Long Beach Attorney with considerable influence in civic affairs and development.

B. General Guidelines and Standards for any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Feb. 1978) are incorporated by reference as guidelines.

The following guidelines and standards recommended by the Cultural Heritage Committee are adopted as guidelines:

The clubhouse's exterior should be preserved as present which conforms to the original design of 1929. Particular emphasis is placed on the preservation of the veranda and its colonial style decor and the present color. The adjoining starter's building may be changed without affecting the main structure since it was an addition. Other buildings, if necessary, can be constructed, but if attached or closely proximate, should conform to the original design.

The interior portions of the clubhouse may be modified to suit lessors or the Park Department with the exception of the main dining/social room where the beam ceilings and the fireplace must be preserved and restored to their original purpose and redesigned and enlarged. Both the men's and women's locker rooms and showers can be redesigned and refurbished to provide more suitable service; this work can be done without disturbing the original design.

Other portions of the interior can be modified: restaurant, pro shop and the second floor facilities.

In addition to those items mentioned above, colonnades, beams, decoration on the exterior, brick porch, cables with decoration, and window appearance should be preserved. (Ord. C-5652 § 1, 1980)

16.52.080 The Bembridge House.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as a historic landmark in the City: The Bembridge House which was constructed between 1904-1906 and is located at 953 Park Circle, Long Beach.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified Section 2 of Ordinance No. C-7675. (Ord. C-7675 § 1, 2000: Ord. C-5653 § 1, 1980)

16.52.090 Cherry Avenue Lifeguard Station.

A. Location, Description and Reasons for Designation. Located on the beach at the foot of Cherry Avenue, this lifeguard station is a most charming landmark for the many beach goers and inhabitants of the bluff top neighborhood that parallels the seashore. Resting on a raised foundation that is functional for the storing of equipment for saving lives (dories, paddle boards, power boats, etc.), the two and a half (2½) story clapboard structure is basically rectangular in shape. The hexagonal lookout and clock tower rests above a low pitch Spanish gable roof. The east and west facades are distinguished by the shiplike portholes, catwalks, and entrance ramp that leads to the station's working quarters.

The Cherry Avenue Lifeguard Station was first constructed at the foot of Linden Avenue to replace the Lifeguard Headquarters that was washed away along with the Pine Avenue pier during a bad storm. It was moved to Cherry Avenue in 1961 (est.). It was designated and built by the City in 1938. It represents the beach style of the 1930s

better than any remaining public structure in the City. The bottom floor of the building will be used as a lifeguard service museum.

The Long Beach Lifeguard Service is the oldest City-owned service of this type on the west coast. It was the first service to operate a power boat in their operations, use a radio communication system, use dories and torpedo cons, and bring water safety instruction to the classroom. Many memorabilia will be displayed in the Cherry Avenue Lifeguard Station Historic Landmark.

B. General Guidelines and Standards for Any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February, 1978), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

The Cherry Avenue Lifeguard Headquarters Building shall be restored in the manner portrayed on drawings numbered B-3140 in the files of the Long Beach Department of Public Works. Future maintenance of the structure which is found to be in keeping with the architectural style illustrated on these drawings shall receive a certificate of appropriateness from the Cultural Heritage Committee.

The bottom floor of the structure shall be used for public display of memorabilia of the Long Beach Lifeguard Service. Organization and maintenance of the displays shall be the responsibility of others and periodic changes thereto shall not require a certificate of appropriateness. Abandonment of the displays or conversion of the display area to other uses, if proposed in the future, shall require a certificate of appropriateness.

Future changes to the related feature (auxiliary building) shall also conform to the architectural style of the main building. (Ord. C-5726 § 1,1981)

16.52.100 William Benjamin Dearborn Simmons Tracker Pipe Organ.

A. Location, Description and Reasons for Designation. Located within the Los Altos United Methodist Church at 5950 Willow Street in the City, this organ arrived in San Francisco on the heels of the Gold Rush days. It has State-wide significance in that historians believe it to be the oldest Tracker-type church instrument extant west of the Mississippi. It was first played in 1852 after its journey around the Horn in a clipper ship. It was built in Boston, Massachusetts. It served in two (2) locations in San Francisco, survived the 1906 earthquake and is of such quality of construction that there is every reason to believe it can be played for another one hundred thirty (130) years or more. With such a past as well as this hope for the future, it brings significance to Long Beach. In addition to its history, it had an illustrious builder. William Benjamin Dearborn Simmons of Boston had been apprenticed to Thomas Appelton, a noted organ builder, until 1845. He then formed his own company in partnership with Thomas McIntyre. Simmons died in 1876, aged 53. He is credited with bringing several European Stops to organ building in the United States. The premier recital of this restored organ commanded news items in forty (40) publications across the United States. It played to a full house and the audience included hundreds of organists. The Organ Historical Society has placed a plaque in the Sanctuary recognizing the organ as authentic and significant. Its place in history as an introduction of culture during the excessive era of the Gold Rush, its distinguished builder, its place as a classical specimen of its kind, its fine craftsmanship and promise for the future make it a valuable cultural landmark in our community and State.

B. General Guidelines and Standards for Any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February, 1978), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

1. That the color of the organ case and the building be maintained in their existing condition;

2. That as soon as economically possible, the church provide a display case to house the memo-

rabilia pertinent to the organ and its history. That this case should match the overall color scheme of the organ and the Sanctuary. (Ord. C-5787 § 1(a), 1981)

16.52.110 Dr. Rowan Building.

A. Location, Description and Reasons for Designation. Located at 201-209 Pine Avenue in the City, the Rowan Building brought an example of Art Deco architecture to the City in a truly elegant manner. The extensive use of materials, pattern and livework made the structure a true showcase of the style originated by the Ecole de Beaux-Arts. Although other examples of this style exist on other highrise buildings in the area, none are found on a building of this scale or with the elaborate detailing and use of materials which were incorporated in this building. Located in the center of the commercial area of the City, this building originally afforded a home for Dr. Rowan (the father of Southern California credit dentistry), and for Nisley Shoes which was the "best women's shoe store in the area." It was less expensive to buy a new set of dentures than it was to purchase a pair of women's shoes at the exclusive Nisley's according to advertising which appeared in late 1930.

B. General Guidelines and Standards for Any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February, 1978), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

The significance of this Art Deco building is important to the City because it portrays the environment in an era of history characterized by a distinctive architectural style.

The certificate of appropriateness shall be granted for changes delineated in the Environmental Impact Report number ERR-73-80, Negative Declaration ND-60-80, written by the City Planning Department, Environmental Division, June 18, 1981.

Normal maintenance of the facade shall preserve and/or enhance the Art Deco architecture.

Proposed changes to the exterior elevations of the structure shall be reviewed in accordance with the procedures set forth in Section 2.63.070 relating to the certificate of appropriateness. (Ord. C-5787 § 1(b), 1981)

16.52.120 Long Beach Municipal Auditorium Mural.

A. Location, Descriptions and Reasons for Designation. Located on Third Street at Locust Avenue, the height of the tile mosaic is thirty-seven feet (37'), nine and seven-eighths inches (9⅞); width twenty-two feet (22'), eight inches (8"); area 802.40 square feet. The medium employed is brilliantly colored glazed semi-vitreous tile set in waterproof cement on a reinforced concrete wall. Exclusive of the narrow border, the largest size of tile in the great picture proper is thirteen-sixteenth inch (13/16) square by three-eighths inches (⅜) thick. The number of pieces of tile in the picture is estimated at more than four hundred sixty-six thousand (466,000). The weight of the tiles is approximately three thousand seventy-two (3,072) pounds. Thirty thousand (30,000) pounds of mortar and cement were used for backing and filling the grout lines between the tiles. The following account depicting the "recreational" theme of the mural is from a January 18, 1970 issue of Southland Sunday.

"It is a beach scene with boats sailing the blue ocean in the background and white clouds drifting overhead. On the sandy beach in the mid-area and on the green grass in the foreground are men, women and children enjoying other forms of Long Beach Recreation - surfing, swimming, sunbathing, fishing, picnicking, playing horseshoes, ball and croquet. A sailor and his young wife admire their baby. A speaker voices her opinion on the 'spit and argue' platform."

B. General Guidelines and Standards for Any Charges. The preservation of the Long Beach Mural shall follow the techniques and methods outlined in a report prepared by a consultant for the Redevelopment Agency in the City of Long Beach.

The report deals specifically with the treatment, maintenance procedures, and repair of the tiles and grout holding the mural in place.

A copy of the report shall be kept on file in the office of Long Range Planning, Department of Planning and Building, 5th Floor, City Hall. (Ord. C-5904 § 1, 1982)

16.52.130 Heartwell/Lowe House.

A. Location, Description and Reasons for Designation.

The Heartwell/Lowe House is a Colonial Revival structure located at 2505 East 2nd Street, just outside of the Bluff Park Historic District. It was constructed in 1919.

This symmetrical two (2) story, two thousand three hundred sixty-six (2,366) square foot, Colonial Revival structure is rectangular in shape, has a low hip composition roof with a swept attic vent, and a header bond patterned chimney with sheet metal sheathing above the roof line. The exterior wall material is horizontal shiplap siding. The second story double hung windows are all one (1) and two (2) sash (the upper sashers are vertically divided with four (4) panes each). The lower story windows are plate glass on the front facade and single sash double hung windows on all of the other sides. The front recessed entry is flanked by glass side panels (one (1) on each side) and is covered by an open porch supported by round columns. The open porch doubles as a widow's walk/sun deck trimmed by a delicate wood rail with decorative corner posts. The entry to this area is a french door with glass side panels. The structure rests on a concrete foundation. The back yard is defined by a brick wall connected to the detached garage with a five hundred thirty-two (532) square foot apartment over it. The dining room was enlarged in 1960 (rear).

In designating the Heartwell/Lowe House as an historic landmark, the following specific criteria have been found to exist in this structure:

It possesses a significant character, interest or value attributable to the development, heritage or cultural characteristics of the City, the southern California region, the State or the Nation or if it is associated with the life of a person significant in the past;

It embodies those distinguishing characteristics of an architectural-type or engineering specimen;

It is a part of or related to a distinctive area and should be developed or preserved according to a specific historical, cultural or architectural motif; and

It represents an established and familiar visual feature of a neighborhood or community due to its unique location or specific distinguishing characteristic.

B. General Guidelines and Standards for any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February, 1978) are hereby incorporated by reference.

The following guidelines and standards recommended by the Cultural Heritage Committee are hereby adopted:

Landmark:	The Heartwell/Lowe House
Location:	2505 East 2nd Street
Construction Date:	1919
Architectural Type:	Colonial Revival

The following standards are intended "to protect, enhance and perpetuate" the above landmark established by the Cultural Heritage Committee per the Cultural Heritage Ordinance (No. C-5364) of the City of Long Beach.

The following standards and guidelines will deal with both the interior and exterior of the structure.

1. Exterior - The following features shall be preserved:

a. The overall symmetry of the architectural style;

b. The front porch, columns, and widow's walk/sun deck and decorative railing;

c. The horizontal shiplap siding;

d. The chimney with its sheet metal sheathing;

e. The existing door and window shapes, sizes, materials, and placement; and

f. As well as the existing roof line, shape, and swept attic vent.

2. Interior - The following features shall be preserved:

a. The hardwood stairway, doors, door frames, built-in cabinets, and any other hardwood "decorative" trim;

b. The existing bathroom fixtures and ceramic tile;

c. As well as the decorative fireplace in the living room.

Before any environmental changes can be made to the exterior or interior features outlined above, "no person owning, renting, or occupying property which has been designated a Landmark" can do so without first applying for a certificate of appropriateness. Procedures for administering the certificate of appropriateness are set forth in Section 2.63.070 of the Long Beach Municipal Code.

"General Standards and Guidelines for Landmarks and Historic Districts for the City of Long Beach" shall also apply.

Also, to guide the property owner, renter, or occupant in determining appropriate changes, if deemed necessary, and to the Cultural Heritage Committee in administering the certificate of appropriateness, refer to the selected references on file in the Department of Planning and Building which describe and define architectural style elements. (Ord. C-5904 § 2, 1982)

16.52.140 St. Regis Building.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City: The St. Regis Building.

A. Location, Description and Reasons for Designation. Located at 1030 East Ocean Boulevard in the City of Long Beach, the St. Regis Apartment Building is a seventy-six (76) unit, eight-story, brick and masonry high rise structure resting on the ocean front bluff at Ocean Boulevard and Second Place. The penthouse that comprises the eighth floor is rather simple in design compared to the rich architectural components that work together to form the overall Greek motif. An example of such is the ionic entablature that rims the seventh floor. Part of this decoration is a large triangular pediment and boxed cornice which are both detailed with oversized dentils. Symmetrically placed above the main entry on the sixth floor is a shallow balcony with a masonry spoke design, all supported by cement brackets. The flat columns that rise above this are capped by voluted capitals.

The St. Regis Apartment Building is architecturally significant to Long Beach because it is a rare example of the Greek Revival style on this large of a scale. It also represents an example of the early high rise apartment construction along the coastal bluff.

The main entry is unique. The large platform marble stairs rise into the recessed entry that is characterized by a semi-elliptical arch with a keystone. Flanking the entrance on both sides are round columns next to windows that have molded arch trim. While the upper stories are brick with a header bond pattern, the first floor is constructed in cement block and is decorated with a horizontal pattern that radiates from the larger windows. The round columns that support the second story balcony/porch have large bracket type capitals. The balcony rail is made of masonry spindle rails with large square corner posts. The name of the building is boldly imprinted along the center of the balcony. The entrance off of Ocean Boulevard is similar in design, but the facade is dominated by a fire escape that traverses its way down to the Street.

With the exception of a few new window frames and aluminum awnings, the original exterior of the building is intact. The interior of the building has been changed. The larger changes include the moving of apartment walls and/or the combining of two (2) units into one (1).

B. General Guidelines and Standards for Any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February, 1978), as amended, are incorporated by refer-

ence, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

Any modifications to the St. Regis Building shall be done so in keeping with its architectural style. The brick and masonry facade with all of the architectural details such as the triangular pediment and boxed cornice that adorn the upper level, the masonry balconies, and the decorative recessed entry ways shall not be modified in character.

No environmental changes shall be made to a designated landmark unless a certificate of appropriateness has been issued by the Cultural Heritage Committee or by the City Planning Commission upon appeal, authorizing such environmental change. (Ord. C-5945 § 1, 1983)

16.52.150 Fire Maintenance Station No. 10.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City: Fire Maintenance Station No. 10.

A. Location, Description and Reasons for Designation. Fire Station No. 10, located at 1445 Peterson Street in the City of Long Beach, is a sizable rectangular structure capped by a large mansard roof. The exterior siding is brick that has been stuccoed. It rests on a concrete foundation. The front recessed truck entry is distinguished by a decorative gable. The large windows are, all multipaned. It was constructed in 1925. The roof was partially damaged by a tornado in 1936. (It has since been repaired.)

The importance of the Long Beach Fire Department to the development of the City is amplified by the character of the City. Oil and gas production and shipping both from Signal Hill and the harbor area make fire prevention and suppression critical elements in the City's healthy development. In addition, the port of Long Beach presents special problems for a Fire Department. So preserving the City's oldest remaining station, a shop and many pieces of equipment, especially on the site of the City's first drill school and training tower, makes a significant contribution to preserving the heritage of the City.

Beyond that, the contribution of the City Fire Department to the development of firefighting techniques in the west and the nation are represented on this site. The Long Beach Fire Department was the first one on the west coast to use mechanized equipment while others depended on man or horse drawn equipment. In addition, a valve that allows firefighters to switch from one (1) water source to another without interrupting the water supply directed at a fire was developed by the local Fire Department and named after its inventor (the Lucas valve). This valve is now in use by Fire Departments all over the world.

Further significance is given this fire station location because of the many examples of firefighting equipment that are stored in the building. This collection of firefighting equipment brought together at the expense and time of the Long Beach Firefighters Historical Society, includes the following engineering specimens:

1. Equipment. Original Long Beach 1902 hand cart. This being one of two (2) purchased by Long Beach.

2. 1923 Seagraves Aerial Ladder Truck. Original purchased by City, June 1923. Retired in 1949 and sold to the City of Visalia. Fireman purchased it in 1977 and brought it back to Long Beach.

3. 1926 Ahren's Fox Pumper. Seven hundred fifty (750) gallons per minute pumper purchased in 1926 and retired in 1948. Fireman purchased from Mack Truck by paying trade in price on a new pumper.

4. 1935 G.M.C. Squad Wagon purchased for one thousand two hundred fifty-four dollars and thirty-one cents ($1,254.31) in 1935. This was purchased in 1981 by Tom Stewart Insurance and given to the Historical Society.

5. Purchased in 1961 by our association from the movie studios, two (2) pieces of equipment, the same as used by Long Beach in the very early days 1905 to 1913. These both being horse drawn.

6. 1905 Amoskeag Steam Pumper.

7. 1894 Robinson Hose Wagon.

8. In addition to these major pieces of equipment, the station houses many small artifacts such as a unique collection of photographs, fire buckets, helmets, nozzles, etc.

B. General Guidelines and Standards for Any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February, 1978), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

1. Any alterations, modifications, or repair of Fire Maintenance Station No. 10, or to any of the historic vehicles, machinery, or artifacts in storage therein, shall be done so in keeping with their historic character.

2. No environmental changes shall be allowed unless a certificate of appropriateness has been applied for and approved by the Cultural Heritage Committee or by the City Planning Commission upon appeal, authorizing such environmental changes. (Ord. C-5964 § 1, 1983)

16.52.160 Leonie Pray House.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City: The Leonie Pray House.

A. Location, Description and Reasons for Designation. Located at 4252 Country Club Drive, in the City of Long Beach, this English Tudor mansion is one of the most architecturally significant residential structures in Long Beach. Its scale, size, and detail is unmatched in the City.

The house was designed and constructed by William E. Babb in 1927. Mr. Babb was a prominent Long Beach businessman who came to Long Beach in 1907 as the Manager of the phone company. He later resigned that post to engage in building contracting. Shortly before oil was discovered on Signal Hill, Mr. Babb, with other local builders, had completed plans for an eleven (11) acre residential project at Signal Hill. The project was abandoned when oil was discovered and, consequently, Messrs. Babb and others received large oil royalties.

In 1929 the house was purchased by Russell Pray, Attorney at law. The following history was excerpted from the Long Beach Blue Book, by Walter H. Case:

RUSSELL H. PRAY

Russell H. Pray is a well known and successful lawyer of Long Beach, who has practiced here since 1922. His first association in Long Beach was with Swaffield and Swaffield and in 1923 he became a member of the firm of Swaffield, Swaffield & Pray. In 1924 he took up practice alone and has so continued ever since. His suite of offices is located in the Security Building and his staff consists of three (3) additional lawyers.

Mr. Pray was born in St. Paul, Minnesota, on March 8, 1892, the son of Alvah J. Pray and Laura Elizabeth (Trowbridge) Pray. He was educated in the public schools of Columbus, Ohio, and entered Ohio State University in 1910. His law course was taken at the University of Michigan, which he completed in 1915. His degrees are A. B. and LL. B. After graduating he took a position with the American Telephone and Telegraph Company at Kansas City and for a time became a reporter on a Kansas City newspaper under Burris Jenkins. He went back to the law in 1917, in which year he was admitted to the bar in Missouri, taking up practice in the firm of Harding, Murphy, Deatherage and Harris. In 1918 he enlisted in the United State Army as a Private in the Infantry: later was promoted to Sergeant Major and then to First Lieutenant and assigned later as General Staff Officer commissioned in the Judge Advocate General's Department. He was later made Captain and served in France with the Army, remaining in the Regular Army until 1920. In October, 1920, he resigned his Army Commission and engaged in the practice of law with an American firm in Paris, where he remained until the fall of 1921. During this time he matriculated at the Sorbonne University in Paris and in November of 1921 married Mrs. Pray, formerly Leonie Petuya, a native of France who was attending school in Paris. In December of

1921 Mr. Pray came to California and in the following February was admitted to the bar in California and later came to Long Beach.

Mr. Pray is noted as an able trial lawyer and as a hard worker in his profession. During the last twenty years he has been engaged in many important cases, both in the Trial and Appellate Courts of this State. Mr. Pray was admitted to the United States Supreme Court and the bar of the District of Columbia in 1921. He has been particularly active and interested in the guidance and encouragement of younger lawyers entering his profession.

Well connected fraternally, Mr. Pray is a member of the Masonic Order, being a Knight Templar of the York Rite and a 32nd Degree member of the Scottish Rite, and a Shriner. He also belongs to the Sons of the Revolution, the Sons of the American Revolution, the Alliance Francaise, Paris Post No. 1 and Peterson Post No. 27 of the American Legion, Delta Tau Delta, Academic, and Phi Alpha Delta, legal, Fraternities. He is a member of the Virginia County Club, the Pacific Coast Club, Long Beach Bar Association, Los Angeles Bar Association, California State Bar Association and the American Bar Association.

Russell H. Pray died after a brief illness in 1971. He was 79, Mrs. Leonie Pray still owns the house.

B. General Guidelines and Standards for Any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February, 1978), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

Any alterations, modifications or repair of the Leonie Pray House shall be done so in keeping with their historic character.

No environmental changes shall be allowed unless a certificate of appropriateness has been applied for and approved by the Cultural Heritage Committee or by the City Planning Commission upon appeal, authorizing such environmental changes. (Ord. C-6020 § 1, 1983)

16.52.170 The Skinny House.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City: The Skinny House.

A. Location, Description and Reasons for Designation. Located at 708 Gladys Avenue in the City of Long Beach, this three (3) story, eight hundred sixty (860) square feet, half-timber expression of Old English Tudor architecture exterior is compressed onto a ten foot (10') by fifty foot (50') residential lot which was created by an oversight in a real estate transaction at the corner of Gladys Avenue and Seventh Street. It was acquired by Newton Rummond in payment for a one hundred dollar ($100.00) debt in 1931 - in the depth of the depression. Friends said it was too small to be useful; Rummond declared he could build a home on it; a friend dared him to do so - and he did. It was built by a group of unemployed craftsmen who gained employment from the publicity this created when it was completed in 1932. Thousands toured the home where the craftsmen's names were displayed by their handiwork. The house's fame spread and it was featured in Ripley's Believe-It-Or-Not as the nation's narrowest home. Visitors included such notables as Walt Disney and have continued by the thousands at open houses held by a succession of owners over the half century. Occupants have routinely lauded the layout and design as being comfortable and convenient far beyond what would be expected in eight hundred sixty (860) square feet on a thirty-eight foot (38') by ten foot (10') footprint. In 1959 when it was discovered that the house had leaned four inches (4") north, it was straightened to vertical again.

B. General Guidelines and Standards for Any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February, 1978), as amended, are incorporated by refer-

ence, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

Any alterations, modifications or repair of The Skinny House shall be done so in keeping with their historic character.

No environmental changes shall be allowed unless a certificate of appropriateness has been applied for and approved by the Cultural Heritage Committee or by the City Planning Commission upon appeal, authorizing such environmental changes. (Ord. C-6020 § 2, 1983)

16.52.180 First National Bank of Long Beach Building.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City: The First National Bank of Long Beach Building.

A. Location, Description and Reasons for Designation. Located at 101 Pine Avenue in the City of Long Beach, the First National Bank of Long Beach Building is a large rectangular structure with a flat roof. There are commercial offices over the first floor bank and other commercial uses. There is a cornice at roof height, broken pediments adorn all six (6) floor windows and a decorative horizontal bank connects them all. Above first floor all windows are double hung and siding is brick. There are exposed wrought iron fire escapes at both street sides. The corner of the building is broken into three (3) planes. Storefronts vary in treatment. The siding is tile, wood and brick. At corner on third plane are two (2) pilasters. On roof at corner is a large bell tower with clock face. It has four (4) sides, vaulted arches, classical detailing with variation of a hooded or swept roof and a flag pole on roof.

In 1906 the building that currently stands on the northwest corner of First and Pine was opened as the home, on the ground floor, of the First National Bank of Long Beach. When that bank was originally organized in 1900, it was the town's second bank. By 1907 it had five hundred thousand dollars ($500,000.00) in capital stock, a one hundred thousand dollar ($100,000.00) surplus and one million two hundred fifty thousand dollars ($1,250,000.00) in assets. The upper stories of the building were rented to physicians, attorneys and other tenants.

In 1920 the First National Bank moved to new offices at Fourth and Pine and the California National Bank moved from its original home at First and Pine. Upper stories of the building continued to be occupied by a variety of tenants. In 1927, the Bank of America acquired the California National Bank, and the ground floor at First and Pine became a branch of that bank. The name Bank of America can still be seen on the west face of the building.

City building permits indicate that the Bank of America employed the Capital Company to do thirty-five thousand dollars ($35,000.00) worth of remodeling on the building in 1938. Perhaps that is when the blue marble was attached to the first floor exterior.

There is some doubt whether the Bank of America ever owned the building. That bank's primary location in Long Beach was at Fourth and Pine. During the 1920's, and perhaps later, the building's official name was Metropolitan Building.

B. General Guidelines and Standards for Any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February, 1978), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

Any alterations, modifications or repair of the First National Bank of Long Beach Building shall he done so in keeping with their historic character, and shall conform to the following outline for various proposed rehabilitation activities:

1. Structural.

a. The existing feature consists of a six-story load bearing masonry structure, built of brick with a steel frame and wood floors. The floors are nailed and/or bolted to the walls and steel mem-

bers. The floors are in varying condition, ranging from poor to good. The walls are laid up with lime mortar and are in generally fair condition. The roof is of wood and is of joist and purlin construction. It is in poor to fair condition.

b. Proposed work will involve extensive structural reinforcing. A steel bond beam will be placed at each floor level, and it will be anchored into the load-bearing masonry on the interior. Three (3) sheer walls will also be placed into the interior, in the area of the original light well or atrium. Plywood sheathing will be utilized as a sheer diaphragm on the floors. The roof will be repaired and replaced where necessary. Skylights will also be placed into the upper story level in locations relative to original light wells. Possible construction of an exterior sheer wall on the rear elevations may be necessary. These elevations are not, however, of primary architectural significance, and are not visible from the commercial intersection at First Street and Pine Avenue.

2. Windows.

a. The existing windows from the second to six-story levels are of wood construction. They are of the double-hung sash type with chains. A number of the windows are in poor condition due to water damage, warping and dry rot.

b. Proposed work will involve the repair of windows where possible. Several of the windows will be replaced by duplicates of the originals, and all will have clear glass. Plans incorporate the potential use of awnings, and historical photographs indicate that this is appropriate and in accordance with the original exterior appearance.

3. Exterior/Cleaning.

a. The present exterior from the two- to six-story levels consists of yellow pressed brick with cast, stone, and terra cotta trim. The exterior is in generally good condition.

b. Commercial use of the structure requires the cleaning of the exterior wall surface. This will be carried out with mild detergents and soft bristle brushes using a low-pressure water rinse. The trim will be repaired and patched where necessary to prevent long-term water damage.

4. Mechanical/Plumbing/Electrical.

a. The present features consist largely of non-original equipment. It includes, a natural gas engine with a four (4) pipe chilled water system, an electric elevator of 1950's vintage, an electrical system dating from the same period, and a vertical plumbing system dating from 1906 to the 1950's. The mechanical and plumbing systems are in poor condition, while the electrical system is in relatively good condition.

b. Proposed work will involve the reworking of the elevator cables and the period restoration of the elevator cab. The electrical system will be repaired and the majority of the existing feature will be utilized as is. An entirely new plumbing and air conditioning system will be installed.

5. Typical Floor Plan 2 - 6 Story Levels.

a. The existing feature consists of double box corridors with perimeter offices. Extant offices are extremely diverse in size as a result of extensive prior remodeling. The offices are in generally poor condition, although some original woodwork is extant.

b. Proposed work will consist of lobby areas at each floor level with an interior aisle providing access to restroom areas. The development of office spaces will be left to individual tenants.

6. Stairwells/Circulation.

a. The existing circulation plan consists of two (2) stairwells. The first, located off the first floor lobby, leads to all upper floors and to the roof. It consists of metal and marble construction at the first floor level and is of wood construction above. The second, located in the extreme southwest corner of the building, is of wood construction and it leads to the sixth story level only.

b. Proposed work will connect the two (2) stairwells at each upper floor by a one (1) corridor system. The two (2) stairwells will remain in their present location and will be repaired as necessary. The south stairwell will be enlarged for fire exiting purposes.

7. Commercial Space.

a. The existing feature consists of a vacant commercial banking area with basement vaults, and additional commercial frontage at the north-

ern end of the Pine Avenue street level facade. The banking area and vaults have been largely unaltered with the exception of new flooring and counter space. The original ceiling in the banking area, and the furnishings and vaults in the basement area are virtually intact. The commercial frontage along Pine Avenue has, however, been extensively remodeled, and retains little of the original architectural integrity.

b. Proposed work will restore and repair the banking area and basement vaults as necessary. The space will be divided between commercial, banking and restaurant activities. All extant historical and architectural features of significance will be retained. A sheer wall will be placed at the dividing line of the restaurant and banking areas.

8. Lobby.

a. The extant feature consists of a heavily remodeled space. Some of the original tile flooring and cast detailing remains, although much of the architectural fabric was damaged by the 1950's installation of a drop ceiling.

b. The plaster detailing in the lobby will be refabricated and restored, where possible, to duplicate the original. A substantial portion of the original ceiling remains, but it will be necessary to recast the majority of plaster detailing. The tile floor will be replaced with a more serviceable tile or marble covering. Elevator doors and lighting fixtures will also be fabricated in context with period pieces. One column, which is directly in front of the elevator doorway, may be removed for more efficient circulation. In addition, the north wall of the lobby may be extended to provide for a more usable space.

9. Street Level Facade.

a. The present feature consists of a I939 remodeling of the original feature. The additions, although well done, are in an incompatible architectural style. The original corner entrance has also been blocked in, and the original showcase windows removed. The commercial frontage on the northern portion of the Pine Avenue frontage has also been remodeled.

b. The original showcase windows will be replaced through the use of historic photographs. This will involve the removal of the present 1939 facade, the refabricating of the building base and the installation of appropriate glass and detailing. Original materials, such as marble, metal and cast detailing will be utilized where they are known to have existed. If this information is not available, then the restoration will involve the use of materials common to the period. The commercial alterations at the northern end of the Pine Avenue facade will also be removed and the exterior restored to its original condition.

10. Entry Areas.

a. There are four (4) major entry areas. The Pine Avenue commercial entries, the main entrance leading to the lobby, the main banking entrance, and the auxilIary fire exit located on First Street. With the exception of the First Street entry all of the original doors have been replaced. In addition, the original corner entrance has been entirely removed.

b. The proposed work will involve the rebuilding of the original corner entrance. It will also involve the fabricating of brass doorways for all of the major entry areas. Wood doorways will be used where appropriate and when allowed by fire code. Marble steps and brass handrails will duplicate the originals.

11. Clock Tower/Parapet.

a. The original parapet has been entirely removed from the Pine Avenue and First Street elevations. The clock tower is built of wood and tin with steel bracing. It is in generally good condition, but structural reinforcing is necessary.

b. Proposed work will involve the replacement of the parapet to duplicate the original. In this manner the original "balance" of the entire facade may be restored. In addition, the clock tower will be repaired and structurally reinforced with steel ties. The parapet and tower will then be painted to reflect the color of the brick wall surface.

No environmental changes shall be allowed unless a certificate of appropriateness has been applied for and approved by the Cultural Heritage Committee or by the City Planning Commission upon appeal, authorizing such environmental

changes. (Ord. C-6026 § 1, 1984)

16.52.190 Henry Clock House.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City: Henry Clock House.

A. Location, Description and Reasons for Designation. Located at 4242 Pine Avenue, the Henry Clock House is a "Monterey Revival" style house, constructed in 1933, and designed by Kirtland Cutter.

The house has a floor area of five thousand two hundred thirty-three (5,233) square feet and has an irregular floor plan consisting of an attached triple car garage at the south end with a swimming pool off of the living room near the side yard on Locust Avenue. It is a two-story structure with a Monterey style balcony and decorative wood rafter supports and railing. The lower floor has stucco siding with the second story clad with board and batten wood siding. It has a red clay tile hip roof, fireplace and a brick wall surrounding the garage entry. The double-hung windows are accented with stationary shutters. It rests on a concrete foundation.

Henry Clock was an Attorney and an outstanding leader in Long Beach. He was born in Iowa in 1908. Two (2) years after his birth, his father, Ralph H. Clock, moved the family to Long Beach and started the legal firm of Clock, McWhinney and Clock, one of the oldest in Long Beach. Henry attended Stanford and Southwestern Law School. In 1932 he married Frances Terry, daughter of a prominent surgeon, Roy A. Terry. He joined his father's firm, which shortly became Clock, Waestman and Clock, upon Mr. McWhinney's retirement. He served as a member of the National Boys Club of America and was past president of the Boys Club of Long Beach and received the Golden Boy Award in 1960. He also served as president of the Long Beach Area Boy Scouts of America; the Avalon Tuna Club; the Memorial Hospital Medical Center, and served on the Board for the Long Beach Bar Association for many years. He was a member of the American Bar Association and the State Bar Association of California; the American College of Probate Counsel and founder of the Lincoln Club. Henry Clock died in 1976.

B. General Guidelines and Standards for Any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February, 1978), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

Any alterations, modifications, or repair of the Henry Clock House shall be done so in keeping with its historic character.

No environmental changes shall be allowed unless a certificate of appropriateness has been applied for and approved by the Cultural Heritage Committee, or by the City Planning Commission upon appeal, authorizing such environmental changes. (Ord. C-6154 § 1, 1985)

16.52.200 The Artaban Apartments.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City: The Artaban Apartments.

A. Location, Description and Reasons for Designation. Located at 10 Atlantic Avenue and constructed in 1922, this building is a very good example of a large scale apartment building from the 1920/1930 era. As was common at this time in Long Beach, this building was built as cooperative apartments and included such amenities as a built-in refrigeration plant, laundry room, meeting and game rooms. The exterior of the building is concrete with many decorative touches added. There is a decorated band between the second and third floors and plain bands between each of the remaining floors. These bands are on the south and west sides of the building. The south side of the building features balconies under the center windows on the second through eighth floors and two (2) side balconies on the seventh floor, all

these balconies face the ocean. On the west side are two (2) individual balconies on the fifth and seventh floors. Although the roof is flat, a decorative band running atop the south and west sides of the building simulates an overhanging roof. The entrance to this building is on the west side and is surrounded by a decorative arch and the recessed doorway is surrounded by a very decorated entrance. The lobby of the building is very beautiful and well maintained, the ceiling is a very colorful fresco with many details. The mantle around the fireplace shows scenes of Artaban travelers looking for Jesus.

B. General Guidelines and Standards for Any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February, 1978), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

Any alterations, modifications or repair of the Artaban Apartments exterior or interior lobby artwork (ceiling, molding, fireplace, etc.) shall be done so in keeping with their historic character.

No environmental changes shall be allowed unless a certificate of appropriateness has been applied for and approved by the Cultural Heritage Committee or by the City Planning Commission upon appeal, authorizing such environmental changes. (Ord. C-6154 § 2, 1985)

16.52.210 The Broadlind Hotel.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City: The Broadlind Hotel.

A. Location, Description and Reasons for Designation. Located at 149 Linden Avenue on the southwest corner of the intersection of Broadway and Linden Avenues (hence the name Broadlind) in Long Beach, the Broadlind Hotel is square in plan and four (4) stories in height. A twenty (20) by twenty foot (20') penthouse at the northeast corner gives the impression that the building has a tower. The penthouse has a tiled, hipped roof. The low pitched roofs on the north and east sides are also tiled. The penthouse windows on the street sides are arched and six (6) in number, with larger arches over each pair. A long shelf gives the appearance of support for the windows. The building has arched street level windows, two (2) stories high. These arches are set on square marble columns with Corinthian capitals; these are connected with a braid which reaches from capital to capital. Other decorative features abound.

The Broadlind Hotel is an excellent example of Italian Renaissance architecture which is rare in the City of Long Beach. It was intended to cater to male transients and as such was furnished extensively in a way believed to appeal to masculine tastes - heavy furniture featuring a Spanish motif.

B. General Guidelines and Standards for Any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February, 1978), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

Any alterations, modifications or repair of the Broadlind Hotel shall be done so in keeping with its historic character.

No environmental changes shall be allowed unless a certificate of appropriateness has been applied for and approved by the Cultural Heritage Committee or by the City Planning Commission upon appeal, authorizing such environmental changes. (Ord. C-6154 § 3, 1985)

16.52.220 The Masonic Temple.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Masonic Temple.

A. Location, Description and Reasons for Designation. Located at 228-234 Pine Avenue, the Masonic Temple is a three-story, rectangular brick building that occupies its entire lot. At the top of the roof line, it is decorated by three (3) gables.

These give the building its Romanesque look with Gothic influences. Behind the gables is a mansard roof. Also on the front of the building is a block with "Masonic Temple" written in it.

The ground floor of the building is used for retail stores and various tenants have redecorated the facade. The top two (2) stories in the front were constructed to house offices. The back of the top two (2) stories is the location of the lodge hall.

The Masonic Temple is among the oldest buildings remaining unchanged in downtown. It may be the only remaining building in Long Beach designed by Henry F. Starbuck who designed many other early resort, commercial and residential buildings in downtown Long Beach. He also designed buildings in other cities throughout California. This building is Long Beach's oldest building constructed especially for Masonic lodge activities and it was the home of its oldest Masonic lodge. Among its members were many local citizens who made important contributions to the development of Long Beach.

B. General Guidelines and Standards for Any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February 1978), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

Any alterations, modifications, or repair of the Masonic Temple shall be done so in keeping with its historic character. The restoration/rehabilitation of the Masonic Temple shall conform to the plan approved and on file with the office of Historic Preservation, Parks Services Division, Department of the Interior. If such plans fail to meet the approval of the State agency, then any subsequent rehabilitation plans formulated for the structure shall be subject to review and approval by the Cultural Heritage Committee.

No environmental changes that deviate from the approved rehabilitation plan shall be allowed unless a certificate of appropriateness has been applied for and approved by the Cultural Heritage Committee or by the City Planning Commission upon appeal, authorizing such environmental changes. (Ord. C-6193 § 1, 1985)

16.52.230 The Matlock House.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Matlock House.

A. Location, Description and Reasons for Designation. Located at 1560 Ramillo, this single-family residence was designed by architect Richard J. Neutra. The eight (8) room house plus three (3) car garage is of wood frame and stucco construction. Building regulations dictated the use of pitched roofs. The pitch is a low one and the materials are cedar wood shingles with redwood eaves. There are high banded windows along the front and side of the house and large, window walls facing onto the pool and garden area in the back. This allows space to flow visually between the primary living areas and the garden areas. The carport on the north side of the house seems to be a part of the house. The front door is protected from the public areas of street and sidewalk by an integrated landscaping plan that seems to be a part of the house.

The house was built by Dr. and Mrs. Richard A. Matlock after they had seen the Neutra house of Dr. Grant Beckstrand. The Matlocks had many meetings with Mr. Neutra so that he could learn about their lifestyle and interpret the needs and desires of their family. They felt he was very thorough in these discussions. Neutra personally supervised the construction of the house, coming to Long Beach to be on-site about once a week. He was instrumental in seeing that the landscaping was done to be in harmony with the architecture of the house.

The house was purchased in 1968 by the Matlocks' daughter and her husband, Mr. and Mrs. John A. Masterson, who have been careful to keep the integrity of the architecture in mind in any additions they have made.

B. General Guidelines and Standards for any Changes. The "Standards for Rehabilitation and

Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February 1978), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

Any alterations, modifications, or repair of the Matlock House shall be done so in keeping with its historic character.

No environmental changes that deviate from the approved rehabilitation plan shall be allowed unless a certificate of appropriateness has been applied for and approved by the Cultural Heritage Committee or by the City Planning Commission upon appeal, authorizing such environmental changes. (Ord. C-6206 § 1,1985)

16.52.240 The Moore House.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Moore House.

A. Location, Description and Reasons for Designation. Located at 5551 La Pasada, this single-family residence was designed by architect Richard J. Neutra. The six (6) room, one-story house of wood frame and stucco construction was built in 1952-53 for the Bethuel Moore family. It is a complement to the neighboring home at 5561 La Pasada, and was designed this way by the architect for the purpose of presenting an integrated architectural appearance. Building regulations dictated the use of pitched roofs. The pitch is low and the materials are cedar wood shingles with redwood eaves. The redwood used in the garage door and inconspicuous side "front" door and as a structural definition under the cave in the front of the house contrasts beautifully with the smooth white stucco of the house. High banded windows and movable glass wall sections are significant features of the house. The private front patio and garden become a part of the interior of the house when the glass walls are slid open. This sharing of interior-exterior space is a special part of Mr. Neutra's designs. The front, redwood loggia covers the walkway to 5551 as well as 5561 La Pasada and seems to be a part of the two (2) houses.

Doris and Bethuel Moore moved into the residence in June 1953. Bethuel, in his 40's, was a successful portrait painter and the den was designed as his studio. Doris was the owner of a seamstress shop and the originator of the Hang 10 insignia that graces millions of dollars of surfing and casual wear. Their daughter, Diane, was nine (9) years old. The construction costs were twenty-seven thousand dollars ($27,000.00) plus a ten percent (10%) architect's fee. In 1968, following the death of Mr. Moore by a heart attack, the home was purchased for fifty thousand dollars ($50,000.00) by Dr. Evelyn Blackman, a sociology professor at California State University, Long Beach. The home was sold in 1971 to Terry and Janice Atzen for fifty-two thousand dollars ($52,000.00). Terry, a stockbroker in his 30's, and Janice, a public relations Director, were the parents of Jennifer, 7, and Jonathan, 5. The den was then used as a third bedroom with bifold doors added. In 1981, the house was refurbished. With the exception of the peninsula counter dividing the kitchen from the living room, there were no significant architectural changes.

The bathrooms were updated and some contemporary light fixtures installed. The glass in the living room sliding doors was replaced with gray glass and the tracks refitted. In the kitchen, the painted wood cupboards were refitted with new doors of veneered koa wood to match the original oven and portable bar. The twin residences are pictured or written about in several books on Neutra. They are Richard Neutra: Building and Projects, 1959, edited by W. Boesinger; Richard Neutra, by Rupert Spade; and Richard Neutra and the Search for Modern Architecture, by Thomas S. Hines.

B. General Guidelines and Standards for any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February 1978), as amended, are incorporated by refer-

ence, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

Any alterations, modifications, or repair of the Moore House shall be done so in keeping with its historic character.

No environmental changes that deviate from the approved rehabilitation plan shall be allowed unless a certificate of appropriateness has been applied for and approved by the Cultural Heritage Committee or by the City Planning Commission upon appeal, authorizing such environmental changes. (Ord. C-6206 § 2, 1985)

16.52.250 The Olan Hafley House.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Olan Hafley House.

A. Location, Description and Reasons for Designation. Located at 5561 La Pasada, this single-family residence was designed by architect Richard J. Neutra. The five (5) room, one-story with a second story over the garage, is of wood frame and stucco construction. It was built in 1952-53 at the same time as the adjacent home at 5551 La Pasada. The two (2) homes appear to be twin homes. They were designed this way for the purpose of presenting an integrated architectural appearance. Building regulations dictated the use of pitched roofs, and in the Hafley House (5561 La Pasada) the roof timbers are left exposed internally in natural redwood. Sliding glass doors allow space to flow visually between the living room and the garden. Generally open-planned, the house also has an upper story in the form of a bedroom over the garage. There is an inconspicuous front door at the side of the house and a common entrance passage of redwood loggia arching the front walks for both 5551 and 5561 La Pasada. The back yards for the two (2) homes are also perceived as one (1) continuous yard, as there is no fence separating them. The smooth white stucco and the redwood timbers and high banded windows are also significant features of the home.

Mr. Hafley first heard of Mr. Neutra from a high school civics teacher in Du Quoin, Illinois, in approximately 1934, when the teacher quoted from a Time magazine article on a young up and coming Los Angeles architect that "designed the only homes fit for man to live in." In 1951, when the Hafleys decided to build a house, Mr. Neutra was interviewed and commissioned. Meeting with Mr. Neutra at least twice a month during the planning period, they reviewed their daily tasks, interests and entertainment styles. Interested in designing a unified look with the neighboring homes, he asked the Hafleys to contact the owners of the properties adjacent to their site. The Bethuel Moores, original owners of 5551, were interested. The two (2) homes were built at the same time. The homes reflect Mr. Neutra's philosophy of poetic imagery: "I try to make a house like a flower pot in which you can root something and out of which family life will bloom. It's not so much a question of ornamenting the flower pot as of fabricating it in such a way that something healthy and beautiful can grow in and out of it." Quoted from an article in the Los Angeles Times, Part VI, Sunday, March 13, 1977.

B. General Guidelines and Standards for any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February 1978), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

Any alterations, modifications, or repair of the Olan Hafley House shall be done so in keeping with its historic character.

No environmental changes that deviate from the approved rehabilitation plan shall be allowed unless a certificate of appropriateness has been applied for and approved by the Cultural Heritage Committee or by the City Planning Commission upon appeal, authorizing such environmental changes. (Ord. C-6206 § 3, 1985)

16.52.260 The Willmore Building.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning

Commission, the City Council designates the following building as an historical landmark in the City: The Willmore Building.

A. Location, Description and Reasons for Designation. Willmore was built in 1925. From its completion until 1952 it was a residential hotel, eleven stories in height, which offered vacationing easterners winter accommodations and access to the warm, sunny beaches of Southern California. The L-shaped tower contains traditional hotel rooms, one- and two-room apartments with kitchens, and a tenth floor luxury penthouse. On the ground floor there is a large lobby; the solarium occupies the eleventh floor. The Willmore became an own-your-own building in 1952.

Architects in the early twentieth century were confronted with a major dilemma when designing buildings in classical style: How could they use the historical forms originally meant for one- to three-story public and religious buildings in the tall modern structures meant for contemporary functions? The Willmore offers an example of the solution: A careful copying of a fifteenth century Italian palace, with the middle heightened to accommodate the required stories.

The first two (2) floors of the Willmore tower serve as the palace base, with the heavy stone foundation - quoining - and large windows terminated by the molding above the second floor windows. The third through the eleventh floors are the body of the palace, relatively devoid of ornament to strongly state the height of the building. At the top there is an implied entablature and cornice at the parapet wall. Here, in plaster, the cornice ledge is held up by braces fastened with three (3) bronze rivets. Befitting a palace, surfaces between the braces are decorated with shields and fleur-de-lis above a hound's tooth border.

The colonnade, an attractive feature of Italian architecture, is used at the lobby entrance and again at the solarium at the top of the building. The lobby colonnade is in actual scale and gives an accurate replication of an Italian building. Featured are a tiled plaza, a fountain with mosaic decoration, and arched openings into the base of the tower. At the top is a smaller scale colonnade repeated as windows and balcony for the solarium.

Italian palace ornamentation is used on the friezes at the base and lower molding, typical balconies at the third and seventh floors, and on the complex cornice at the top of the tower. The required mechanical enclosures on the roof are housed in a replication of a typical Italian village - small white houses randomly ordered with small windows and rustic tile roofs.

Palace scale ornaments and furniture are used inside the lobby and faithfully preserved to this day. The terrazzo floor, a priceless example of 1920's craftsmanship, is black and white squares set diagonally to the building grid - a hallmark of Italian style. Balconied windows and a grand fireplace with a black onyx facing reinforce the style. The ceiling of a palace is reproduced in plaster and decorated in colors typical of Mediterranean style during the Renaissance. At the center of the lobby is a huge amber glass skylight which floods the room with light during the day. Residential rooms are finished in generous wall base molding, clean wall surface, and well detailed trim at the ceiling.

In summary, the Willmore is a significant architectural landmark because it is a good representation of Italian Renaissance palace style, it is rich in palatial detailing, and it is a well preserved example of a luxury residential hotel in Long Beach in the 1920's.

B. General Guidelines and Standards for any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February 1978), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

Any alterations, modifications, or repair of the Willmore Building shall be done so in keeping with its historic character.

No environmental changes shall be allowed unless a certificate of appropriateness has been applied for and approved by the Cultural Heritage

Committee or by the City Planning Commission upon appeal, authorizing such environmental changes. (Ord. C-6239 § 1, 1986)

16.52.270 The Lafayette Complex.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following buildings as an historical landmark in the City: The Lafayette Complex, consisting of:

1. The Lafayette Hotel
   Location: 140 Linden Avenue
   Construction Date: 1929
2. The Lafayette Addition
   Location: 140 Linden Avenue
   Construction Date: 1948
3. The Campbell Apartments
   Location: 130 Linden Avenue
   Construction Date: 1928

A. Location, Description and Reasons for Designation.

1. Constructed in 1929, the Lafayette Hotel, located at 140 Linden Avenue, is rectangular in plan and consists of one (1) structure. The roof is flat, and each building has two (2) recessed floors at the top. Above the second story on the shorter structure there are extremely ornate swag designs and zig-zag patterns, while the seventh story has draping ornamentation between and above the windows. The windows are recessed vertically, and each window has a shelf.

2. The Lafayette Addition was added to the hotel in 1948 as an eight-story addition facing Broadway. There were one hundred (100) rooms. The University Club used the top floor. The kitchen was enlarged, and there were additional banquet rooms and a large supper club which would accommodate three hundred fifty (350) persons. The architecture is South American style, and the building is constructed of reinforced concrete. The then-owner, R.E. Campbell, made an inspection tour of all major hotels in the United States before drafting his final plans. Mr. Campbell died during this project, and his children took over. Robert E. Campbell ran the hotel for four (4) years. In February 1952 the complex was sold to Hilton. The three (3) buildings (including the Campbell Apartments) were joined together. The Ivanhoe Room, the Fife and the Drum Room were opened. In 1968, Hilton turned the building over to Robert Campbell and Norma Campbell Craig. In 1969, the whole complex was converted to condominiums. The property covers forty-one thousand (41,000) square feet of ground. There are one hundred seventy-three (173) residential units and forty-two (42) commercial units, with a total of about two hundred thousand (200,000) square feet of building space.

3. The Campbell Apartments, constructed in 1928, adjoin the Lafayette Hotel site. The eleven-story Spanish Renaissance building is typical of Southern California architecture of the 1920s. It has scroll and swag decorations beginning at the second floor and pyramiding up to the fourth floor. There is an ornamental balcony on the ninth floor. The central openings are bell-cast in shape and flanked by two (2) windows on each side, very symmetrical in design.

Built by Reginald Campbell, The Campbell Apartments, Campbell, were deluxe apartments with hotel service. Every apartment had its own kitchen, and maid service was available. It provided a garage in the basement, and cars were kept polished by garage attendants. The Lafayette Hotel was bought by Reginald Campbell to protect the Campbell Apartments.

The exterior embellishments give this building an outstanding facade of modern architecture. It preceded Art Deco.

The land for the Campbell Apartments was acquired from the Southern Pacific Railway Company by the Broadway Land Company. The completion of the project marked the first major step of an important new business district. The Campbell's eleven (11) stories complied with the Long Beach height limitation in 1928 and gave the skyline of Long Beach a cosmopolitan aura.

The Lafayette Complex occupies a prominent and desirable location in Long Beach. The property covers forty-one thousand (41,000) square feet of ground space and it is visible from a large area.

B. General Guidelines and Standards for Any Changes. The "Standards for Rehabilitation and

Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February, 1978), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

No environmental changes shall be allowed unless a certificate of appropriateness has been applied for and approved by the Cultural Heritage Committee, or by the City Planning Commission upon appeal, authorizing such environmental change.

Any alterations, modifications, or repair of the Lafayette Complex shall be done so as to be fully in keeping with its historic character, provided that: (1) the exterior architecture of the Lafayette Condominium Complex is significant and shall not be altered, and (2) the entry and first floor is significant and, when possible, should be restored to its original appearance. (Ord. C-6314 § 1, 1986)

16.52.280 The Linden House.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Linden House.

A. Location, Description and Reasons for Designation. Located at 847 Linden Avenue in the City of Long Beach, this two-story structure is square in plan with a high hip roof intersected by an offset gable with a false half timber pediment and segmented attic window with a cross gable, open to the side. A pediment gable with bas-relief "swag and seal" projects from a flared siding over the elevated recessed porch and has cast stone-type block supports and base. There are two (2) elaborate leaded glass windows on the front facade. A stained glass window with a segmented transom is on the right side of the house. A leaded glass window is also located in the dining room bay. There is a recessed balcony on the second floor with composite Corinthian wood columns. The roof has brackets and dentils for ornamentation as well as exposed eaves with across bar linkage. Small dentils also appear on the capitals of the stone columns supporting the front porch. The attic floor was used as servants' quarters.

Tax records indicate that the Linden House was built in 1907. It is listed in a 1908 City Directory and its occupant was listed as Charles Reed, Building Contractor. His brother, and partner in contracting, was listed as living next door at 837. In 1911, the Directory lists a new occupant of the house, Cecil A. Sensor, whose occupation was given as real estate. In 1913, Louisa Sensor was also listed as an occupant of the house. Beginning some time in the 1920s, the house was occupied by Mrs. Anna McClosky and Katherina McClosky. In 1933, following the earthquake, a building permit for seven hundred dollars ($700.00) in repairs was issued and the contractor was listed as James Reed. Another building permit, issued in 1951 when asbestos siding was added to the house, lists William J. Gilson as the owner. The house has the original gas lights in many rooms.

In summary, the Linden House is a significant architectural landmark because it is a good representation of the influence of local craftsmanship on the Queen Anne style of residential structures.

B. General Guidelines and Standards For Any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February, 1978), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

Any alterations, modifications, or repair of any of the above structures shall be done so in keeping with their historic character.

No environmental changes shall be allowed unless a certificate of appropriateness has been applied for and approved by the Cultural Heritage Committee or by the City Planning Commission, upon appeal, authorizing such environmental changes. (Ord. C-6381 § 1, 1987)

16.52.290 The Termo Company Building.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning

Commission, the City Council designates the following building as an historical landmark in the City: The Termo Company Building.

A. Location, Description and Reasons for Designation. Located at 3275 Cherry Avenue in the City of Long Beach, the Termo Company Building represents the importance of the discovery and production of oil in Long Beach and throughout California. The company owns and operates oil wells not only in Long Beach but throughout California and the rest of the United States. It was, in fact, nearly twenty (20) years after the building was completed that oil was discovered under it and its surrounding property. Oil, according to Gerald White, is the gold of the twentieth century in California. And this unique building is the kind of work space that the leaders of one particular company chose for themselves. The building's unique architectural character represents the freedom to make nontraditional choices that success in the oil business gave to certain entrepreneurs.

Once, the row of oil-related businesses along Cherry Avenue, mostly south of the Termo Company Building, was a center of business activity and technological innovation not only for the oil field on Signal Hill but for many other fields discovered throughout Southern California after the First World War. At about the same time these fields were discovered, other entrepreneurs were beginning to produce automobiles that were within the price range of millions of people. The existence of that market for gasoline encouraged the rapid exploitation of the recently discovered oil. Cherry Avenue in Long Beach and adjacent Signal Hill became an important center for sharing information, experimenting with new technology and accumulating capital for new projects.

In summary, the Termo Company Building is an architecturally unique building that represents influence of the oil business on Long Beach and throughout California.

It tells the story of a significant part of oil-related businesses and their influence in Long Beach and throughout California. It represents the affluence that comes to those who are successful in finding oil and the unbelievable quantity and rapidity with which it can overwhelm its owners.

B. General Guidelines and Standards for any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February, 1978), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

Any alterations, modifications, or repair of any of the above structures shall be done so in keeping with their historic character.

No environmental changes shall be allowed unless a certificate of appropriateness has been applied for and approved by the Cultural Heritage Committee or by the City Planning Commission, upon appeal, authorizing such environmental changes. (Ord. C-6465 § 1, 1988)

16.52.300 The Home Market Building.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission the City Council designates the following building as an historical landmark in the City: The Home Market Building.

A. Location, Description and Reasons for Designation. Located at 942-948 Daisy Avenue in the City of Long Beach, the Home Market Building, the structure was built in 1925 as a "Two-Story Brick Store And Dwelling for F.W. and W.C. Ovelman". The plans were prepared by the Long Beach architectural and engineering firm of Schilling and Schilling. It was originally operated as the Home Market with a residence for the Ovelmans above the market. The building represented a transition in the area from residential and small, temporary commercial uses to larger permanent commercial buildings. (It remains the only two-story commercial structure in the district today.) The firm of Schilling and Schilling later built the Lafayette Hotel, and were considered the fathers of "modern architecture applied to commercial buildings in Long Beach."

B. General Guidelines and Standards for any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February, 1978), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character.

No environmental changes shall be allowed unless a certificate of appropriateness has been applied for and approved by the Cultural Heritage Committee or by the City Planning Commission, upon appeal, authorizing such environmental changes. (Ord. C-6509 § 1, 1988)

16.52.310 The Farmers and Merchants Bank Office Tower.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Farmers and Merchants Bank Office Tower.

A. Location, Description and Reasons for Designation. Located at 320 Pine Avenue in the City of Long Beach, the Farmers and Merchants Bank Office Tower is a ten-story steel and terra cotta structure, designed by Curlett and Beelman and built in 1923 by the McNeil Construction Co. The structure was the City's first "skyscraper" and introduced the modern era of building design to the City. The building is characterized by classic detail along the top floor and along the second floor in the form of urns, scrollwork and a shell pattern. Many locally prominent attorneys, physicians and other professionals occupied offices in the bank tower, including two (2) of Long Beach's Mayors.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February, 1978), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character.

No environmental changes shall be allowed unless a certificate of appropriateness has been applied for and approved by the Cultural Heritage Committee or by the City Planning Commission, upon appeal, authorizing such environmental changes. (Ord. C-6547 § 1, 1988)

16.52.320 The Long Beach Professional Building.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Long Beach Professional Building.

A. Location, description and reasons for designation. Located at 117 East Eighth Street in the City of Long Beach, the Long Beach Professional Building, built in 1929, was the first large office building in Long Beach devoted exclusively to the practice of medicine. It attracted many well-known physicians and dentists to the Long Beach area. The building has a classic art-deco style lobby done in pinks and blacks. The structure itself is an eight-story, two-part vertical block and is a late example of art deco that introduced elements that became commonly used in the W.P.A. moderne style of the 1930's.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February, 1978), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character.

No environmental changes shall be allowed unless a certificate of appropriateness has been

applied for and approved by the Cultural Heritage Committee or by the City Planning Commission, upon appeal, authorizing such environmental changes. (Ord. C-6547 § 2, 1988)

16.52.330 Bixby Ranch House.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Bixby Ranch House.

A. Location, description and reasons for designation. Located at 11 La Linda Drive in the City of Long Beach, the Bixby Ranch House is described as Colonial Revival in style and was designed by the San Francisco firm of Coxhead and Coxhead. The structure was completed in 1890 after three (3) years of construction. The house was built for the son of George H. Bixby, oldest son of Jotham Bixby, and served as the headquarters for the Bixby ranch operations. The house contains almost seven thousand (7,000) square feet of living space. The nine (9) bedrooms and five (5) bathrooms provided adequately for George Bixby's large family: he and Mrs. Bixby had seven (7) children.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February, 1978), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character.

No environmental changes shall be allowed unless a certificate of appropriateness has been applied for and approved by the Cultural Heritage Committee or by the City Planning Commission, upon appeal, authorizing such environmental changes. (Ord. C-6555 § 1, 1989)

16.52.340 The Houser Building.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Houser Building.

A. Location, description and reasons for designation. Located at 2740-46 East Broadway in the City of Long Beach, the Houser Building is a three-story brick commercial/residential structure constructed in 1929. The Italianate style building was constructed by W.J. Essen and designed by architect Joseph Halstead Roberts. Mr. Roberts designed approximately seventy (70) structures in the City. Although many have been demolished, several still remain that attest to his talent as an architect. A most significant example is the St. Regis Apartments, a Long Beach Landmark by separate ordinance. This particular building represents a good example of an early neighborhood commercial development. It was constructed for Mr. John T. Houser, a prominent lawyer in Long Beach. The Houser family lived behind this structure at 2743 East Second Street. A bridge from the back of their home connected the structures.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (February, 1978), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character.

No environmental changes shall be allowed unless a certificate of appropriateness has been applied for and approved by the Cultural Heritage Committee or by the City Planning Commission, upon appeal, authorizing such environmental changes. (C-6555 § 2, 1989)

16.52.350 The Harriman-Jones Clinic.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Harriman-Jones Clinic.

A. Location, description and reasons for designation. Located at 211 Cherry Avenue in the

City of Long Beach, the Harriman-Jones Clinic is described as composite period revival—Tuscan/ Roman villa in style. The original 1930 plan was a two-story central entrance to a reception room and waiting area that was flanked by two (2) interior courtyards. The northern courtyard was roofed over in 1954. A two-story addition was built to the west in 1955 and a two-level parking deck was added to the parcel west of the alley in 1962. The east facade is in its original condition with a symmetrical portico In Antis. The Tuscan columns support half-round arches with smooth soffits leading to a stoop with stone benches on either side. On either side of the portico are pilasters supporting a pediment with an unornamented Tympanum. The acroteria receive stylized urns. An extended Escutcheon is mounted on the spandrel above the central arch and the second-story blocking course. A two-story pilaster is noted at each of the original four (4) corners of the building and the west corners of the 1954 addition. At the north end of the ground floor of the east facade is a single bay truncated arch on pilasters with a glazed opening. This detail returns along the north facade for seven (7) bays. The original balconies above bays three (3) and four (4) were removed in the seismic retrofitting of 1986. The 1986 seismic retrofitting was a partial repair for a Grade III building (Subdivision 80). The original building roof is a terra cotta tile with a two-foot overhang. The windows are metal casement with fixed shutters.

Dr. Harriman Jones was one of Long Beach's most prominent physicians. He came to Long Beach in 1902 as one of the town's first doctors, and became the City's first health officer, setting up the City's public health regulations. He organized the Long Beach Hospital (now the site of St. Mary's Hospital), and helped organize Seaside Hospital where he served as Chief of Staff for many years. His concept for the clinic bearing his name was innovative, combining many medical services under one (1) roof, and setting up a trust fund to provide medical services for the needy. Dr Jones was the first Fellow of the American College of Surgeons and a Founding Member of the American Board of Surgery.

The architect, Kenneth Wing, Sr., F.A.I.A., had a long and distinguished career spanning sixty (60) years in Long Beach. He designed the Long Beach Arena, the Southern California Edison Building, United California Bank, the Physical Education facility at California State University, Long Beach, the Physical Science facility of University of California, Irvine, the Nuclear Medicine facility, and the Long Beach Community Hospital. His designs include the First Baptist Church of Long Beach, Jordan High School, Luther Burbank School, many homes in the Virginia Country Club and Bixby Knolls area, and the renovation of the historic Bixby Ranch in Los Cerritos. He was associated with Allied Architects in the design of Long Beach City Hall and Library complex, and the Terrace Theater and Exhibit Center.

The Harriman-Jones Clinic (1930) was Wing's first major work as an independent architect. He considered it one of his most important works; his obituary in the Press-Telegram listed this building second in the long list of his achievements.

This pedestrian-oriented clinic is located in a neighborhood setting and reflects the Period Revival architecture of the surrounding streets. It is situated at the intersection of the major north-south and east-west corridors of Cherry Avenue and Broadway. Its Italian Renaissance Revival portico, facing the park, has been an important presence in a residential community for almost sixty (60) years.

In summary, the Harriman-Jones Clinic exemplifies the development of modern and progressive medical health services in the City of Long Beach. Dr. Jones founded Long Beach's first hospital in a small building at 327 Daisy Avenue. The clinic on Cherry Avenue originally placed a hospital and various medical services under one roof, and offered health services to the poor. Dr. Jones also founded other hospitals, and served as the City's first Health Officer. Thus, this building embodies the history of modern medicine in the City of Long Beach.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings"

prepared by the Secretary of the Interior (February, 1978), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character.

No environmental changes shall be allowed unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Committee or by the City Planning Commission, upon appeal, authorizing such environmental changes. (Ord. C-6613 § 1, 1989)

16.52.360 The Breakers Hotel.

Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Breakers Hotel.

A. Location, description and reasons for designation. Located at 200 East Ocean Boulevard in the City of Long Beach, the Breakers Hotel was built in 1925. It contains one hundred seventy-two thousand (172,000) square feet and rises thirteen (13) stories with two (2) or more floors below the bluff including a recessed parking lot. The design is Spanish Renaissance Revival with a sky room and tower. The plain, stucco walls with octagonal tile roof at the summit are set off by immense, elaborate concrete ornamentation over the main recessed entrance. The ornamentation is classically derived and includes bas-relief mermaid busts and the heads of Neptune. There are twelfth-floor balconies and vaulted arches onto a wrought iron fire escape landing. The building has double-hung windows with large arched windows at the ground floor. It also features a circular drive with olive trees. The building is a major visual landmark in the area on a palm-lined boulevard. There is a glass view room at the ninth floor rear.

Construction was begun on the Breakers Hotel in 1925. Its developer, Fred B. Dunn, planned a fifteen-story, three hundred twenty (320) room hotel at a cost of one hundred thousand dollars ($100,000.00). With W. Jay Burgin as contractor, the hotel opened within a year. Later it was purchased by Conrad Hilton who made the necessary repairs, added the Sky Room, and reopened the hotel. After Hilton sold the hotel, it became the Wilton Hotel until the 1970s when it was converted into a senior citizens' residence. In 1982 it was reconverted into a hotel and in 1988 is being changed back again into a senior citizens' residence.

As noted, the Breakers Hotel is significant in its unique Spanish Renaissance design. It is one of the largest structures constructed in Long Beach built during the Twenties. In short, it is a fine example of 1920's resort era architecture. The decoration that surrounds the entrance is lavish, symbolizing the era and its structures. The remainder of the building is simple, and its three-dimensional massing distinguishes it on the Long Beach skyline. The interior of the building, especially the elegant lobby and lounge which reflect its 1920's resort era heritage, was refurbished in 1982. On the top of the building is the Sky Room Restaurant decorated in contemporary Art Deco.

B. General guidelines and standards for any changes. The Secretary of Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings are hereby incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

1. Any alterations, modifications or repair of the Breakers Hotel shall be consistent and compatible, in architectural style and materials, with its historic character.

2. All plans for modifications, alterations, color changes, or structural additions to the exterior historic building and its site, including paths, driveways and landscaping, shall be applied for with a Certificate of Appropriateness.

3. No environmental changes that deviate from the approved rehabilitation plan shall be allowed unless a Certificate of Appropriateness has been applied and approved by the Cultural Heritage Commission.

4. The ground floor lobby contains historic design elements, significant interior spaces and decorative features which form part of the building's unique character and should be preserved. These are original, large-arched windows, spacious proportions, floor-to-ceiling pillars and decorative cast plaster friezes and capitals. Alterations, modification, additions and other architectural changes shall be requested of the Cultural Heritage Commission with a Certificate of Appropriateness.

5. Alterations that are necessary for reasons of public safety and seismic compliance shall be given special consideration by the Commission. Every effort shall be made to minimize the physical alterations to the building that result from compliance with the City's seismic ordinance.

6. Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character. No environmental changes shall be allowed unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Committee or by the City Planning Commission, upon appeal, authorizing such environmental changes. (Ord. C-6609 § 1, 1989)

16.52.370 The Ocean Center Building.

Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Ocean Center Building.

A. Location, description and reasons for designation. The Ocean Center Building is located at 110 West Ocean Boulevard in the City of Long Beach, is an outstanding example of essentially Spanish design incorporating red tile roofs. It also includes Italian details such as quoining on all corners. The building was designed to take advantage of ocean views by being terraced fourteen (14) stories down the bluff. The north elevation of the building, facing Ocean Boulevard, is thirteen (13) stories and incorporates a broken pediment and a shield with sea shells and the face of Neptune over the front entry. There is a balcony at the seventh floor front under a pediment with brackets. Formal pediments and battlements decorate all four (4) sides. There is an arcade at the base of the building under the bluff which was intended to serve visitors to the Pike. The building is capped by an octagonal tower which originally held a fifty-foot concrete tower and lantern. A smaller tower decorates the rear of the building. The building is attractive from all sides, utilizing picturesque massing and several Mediterranean design features as detailed in the inventory sheet.

B. It is significant as the first modern office building on the bluff, rising to the City's height limit at that time. Following the 1933 Long Beach earthquake, the fifty foot (50') concrete tower and lantern, two hundred twenty-eight feet (228') from street level, were removed in June, 1934. In 1936, the building was renovated and today the building remains essentially unchanged, and serves as a point of reference in the Long Beach skyline.

C. General guidelines and standards for any changes. The Secretary of Interior's Standards and Guidelines for Rehabilitating Historic Buildings is incorporated by reference, and the following additional guidelines are adopted by the Cultural Heritage Commission:

1. The building's exterior, its massing, stepped setbacks, central tower, turrets, parapets and exterior ornamentation are its most significant elements. Any changes (including change in color and/or replacement of windows), alterations, additions or other modifications to the exterior of the building shall require a Certificate of Appropriateness from the Cultural Heritage Commission.

2. The entryway and lobby corridor contain important historic design and material features that should be maintained and preserved without alteration. These are: the marble terrazzo floor, painted entryway ceiling, marble walls and wainscot and mahogany wood panels. Modifications for maintenance and restoration shall be approved. Other modifications and replacement of existing features shall require a Certificate of Appropriateness.

3. Users of the office space above the public lobby are encouraged to retain the original "antique" architectural components, such as original mahogany doors, because the retention of these features adds considerable value to the entire building.

4. Original exterior site features, such as the large palm tree in front, the front lawn, and exterior stairs with railings, are to be maintained. Applications for modifications and replacement shall require a Certificate of Appropriateness.

5. Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character. No environmental changes shall be allowed unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Committee or by the City Planning Commission, upon appeal, authorizing such environmental changes. (Ord. C-6609 § 2, 1989)

16.52.380 The Adelaide M. Tichenor House.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Adelaide Tichenor House.

A. Location, description and reasons for designation. Located at 852 East Ocean Boulevard in the City of Long Beach, the Adelaide M. Tichenor House was designed by noted architects Charles and Henry Greene. This craftsman bungalow is situated on a bluff overlooking the Pacific Ocean and Long Beach Harbor. The "U"-shaped plan was developed with a two-story central base facing the ocean; two (2) low-pitched, one-story wings extend rearward toward Ocean Boulevard from such side of the central base and once forming an intimate, protective terrace.

Built in 1904, this structure is one (1) of three (3) Greene and Greene designed homes built in Long Beach. Most noted for their grand "ultimate bungalows" of 1907-1909, the Tichenor House is of major importance as it created a significant turning point in the Greene's career. It was the first house for which they designed all the interior furnishings (most of which were removed in a 1953 remodeling), creating a totally integrated work of art.

The Tichenor House, more than any other house, marked a significant turning point in the evolution of the Greene's own architectural vocabulary. The design shows explicit Japanese influence and is more "Oriental" than any other Greene and Greene houses. Mrs. Tichenor had similar interest in oriental design, fine craftsmanship and decorative arts. She gave Charles and Henry Greene the opportunity and latitude to fully demonstrate their own new personal vocabulary, in terms of totality of work involving plan form structure, materials and detail.

The primary entrance into the home was originally from the bluff side, while a Torii gate fully roofed in tile formed a ceremonial entrance from Ocean Boulevard into an oriental garden. The mutual interest in the Orient of both client and architects led to the selection of green tiles for the roof, an arched bridge over the pond in the garden, and the ceremonial roofed gateway.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Committee are adopted:

Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character, and any alteration, modifications or changes shall follow the Secretary of Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings.

No environmental changes shall be permitted unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Committee or by the City Planning Commission, upon appeal, authorizing such environmental changes.

Any architectural features, interior design elements or artifacts that were designed by Greene and Greene and original to the house, or that are

contemporary with the time period in which the house was constructed, shall not be altered or removed without application for a Certificate of Appropriateness. (Ord. C-6614 § 1, 1989)

16.52.390 The Californian Apartments.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Californian Apartments.

A. Location, description and reasons for designation. Located at 325 West Third Street in the City of Long Beach, the Californian Apartments building is five (5) stories in height and square in plan. It has a flat roof and brick siding, yellow bricks used in front, red at the side and back. There are four (4) balconies in front with marble balcony floors and coverings. White brick decorates the bottom of the front windows on the second, third, fourth and fifth stories, the first story windows have spoked fan lights above them, are many-paned and have a keystone above them and wrought iron railings. The fourth story windows have a semi-circular brick design above them and the fifth story have small parapets, the balcony exit is arched and has columns.

The unique Classical Revival architectural design of this forty-nine (49) unit apartment building turns it from just a plain brick building into a structure of visual distinction in Long Beach.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character, and any alteration, modifications or changes shall follow the Secretary of Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings.

No environmental changes shall be permitted to the exterior of the building unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission or by the City Planning Commission, upon appeal, authorizing such environmental changes. Nothing in this Section shall be deemed to restrict internal modifications to the building not visible externally. (Ord. C-6643 § 1, 1989)

16.52.400 The Crest Apartments.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Crest Apartments.

A. Location, description and reasons for designation. Located at 321 Chestnut Avenue in the City of Long Beach, the Crest Apartments building is a two-story, brick-faced apartment house with a flat roof. This structure is notable for the ornamentation on the facade. It is symmetrical, with a recessed entrance in the center. Flat, highly decorated pilasters with a similarly decorated cap surround the entrance. Above the cap is a stone crest supported by two (2) carved figures and other ornamentation. All windows are surrounded by firebrick which contrasts sharply with the brick facade. French doors and windows highlight the ground floor; double-hung sash windows the upper floor. Ornamental iron miniature balconies adorn the upper windows, and large balconies the lower windows. The foundation is concrete, and the roofing material is composition.

The structure is unusually rich in architectural ornamentation, and decorative elaboration of brick are rarely seen on small-scale apartments of this type. The facade is an excellent example of classical revival/Beaux-Arts design typical of that period.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference,

and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character, and any alteration, modifications or changes shall follow the Secretary of Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings.

No environmental changes shall be permitted to the exterior of the building unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission or by the City Planning Commission, upon appeal, authorizing such environmental changes. Nothing in this Section shall be deemed to restrict internal modifications to the building not visible externally. (Ord. C-6643 § 2, 1989)

16.52.410 The Blackstone Hotel

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Blackstone Hotel.

A. Location, description and reasons for designation. Located at 330 West Ocean Boulevard in the City of Long Beach, the Blackstone Hotel is a six-story hotel building featuring a simple, Renaissance Revival-influenced design. Of reinforced concrete construction, the Ocean Boulevard building has a U-shaped facade. Stringcourses set off the bottom and top stories. Single and paired double-hung sash windows with raised sills define the bays. A plain entablature culminating in an overhanging corn icecaps the building. Enhanced by landscaping, the Blackstone appears largely unaltered and in good condition.

The Blackstone is important in that it exemplifies the development of highrise residential structures on Ocean Boulevard in the 'twenties, defining the City's first highrise skyline. A reminder of the economic boom of that period, shaped by the City's prominence as a beach resort and fueled by the discovery of oil, the demand for new housing gave rise to residential highrise development downtown. Situated next to the Sovereign, it serves as a strong visual connection to the past and reflects the City's pattern of development.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character, and any alteration, modifications or changes shall follow the Secretary of Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings.

No environmental changes shall be permitted to the exterior of the building unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission or by the City Planning Commission, upon appeal, authorizing such environmental changes. Nothing in this Section shall be deemed to restrict internal modifications to the building not visible externally. (Ord. C-6643 § 3, 1989)

16.52.420 The Sovereign Apartments.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Sovereign Apartments.

A. Location, description and reasons for designation. Located at 354-60 West Ocean Boulevard in the City of Long Beach, the Sovereign Apartments building is a ninety-five (95) unit apartment building. Its eleven (11) stories (plus two (2) sub-grade levels accessed from the rear) are detailed eclectically, although an underlying division into base, shaft, and capital suggests the Renaissance Revival. Of reinforced concrete and tile construction, the rectangular structure is sheathed with stucco. The facade is symmetrical with a central focus provided by a five (5) window bay which runs the entire height of the building. Multi-

paned arched windows flank the central entrance on the smoothly rusticated street level. Stringcourses circle the building above the first, fourth, tenth, and eleventh floors. Tripartite casement windows are located to either side of the central bay in each level and also open onto balconies at either side and in the center of the west elevation. A stepped parapet embellished with an arched motif culminates the design of the facade. Some alteration of the lower levels appears to have occurred (these are indicated to be store spaces on the 1950 Sanborn). The building is in good condition and accented by a tree-shaded front setback.

The Sovereign Apartments, along with its neighbor The Blackstone, are strong visual reminders of oceanfront development in the 1920's. Built in 1922, the Sovereign was an "own-your-own" apartment building, the condominium of its day. The Sovereign contained ninety-five (95) such units in a prime location. The luxurious apartment/hotel complex often boasted many amenities, with first-floor retailers catering to the needs of residents. Marketed by boosters of Long Beach as upper-class living accommodations, the apartment/hotels were a major part of the tourism industry as well as serving as housing for permanent residents. As an example of the Renaissance Revival style in its residential configuration on the ocean, and as representative of Long Beach lifestyle during a major period of growth and development, the eleven-story Sovereign appears potentially eligible for listing in the National Register of Historic Places.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character, and any alteration, modifications or changes shall follow the Secretary of Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings.

No environmental changes shall be permitted to the exterior of the building unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission or by the City Planning Commission, upon appeal, authorizing such environmental changes. Nothing in this Section shall be deemed to restrict internal modifications to the building not visible externally except that the following significant design features of the lobby shall be preserved: the Batchelder tile fireplace, octagonal columns and ornate ceiling moldings. (Ord. C-6643 § 4, 1989)

16.52.430 Windham House (The Lord Mayor's Inn).

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: Windham House (The Lord Mayor's Inn).

A. Location, description and reasons for designation.

Located at 435 Cedar Avenue, Windham House is a four-thousand square foot (4,000'), two-story, wood frame home located on two (2) City lots in downtown Long Beach, California, three (3) blocks from Long Beach City Hall and the Civic Center. It is a California Craftsman-style home designed in 1906 by George L. Hoodenpyl, a trained architect and prominent Southern California Attorney who later served as City Attorney of Long Beach.

Windham House is a massive, square-shaped structure of deceptively unsymmetrical design, built upon a stone foundation which is carried upward in three (3) massive stone columns with square capitals.

The capitals support that portion of the second story over the recessed porch in the center and right side of the front. Siding material is wood board and wood shingle. A pyramidal roof caps the home. A hipped roof covers a small dormer sheltering an attic vent. Below this is a projecting triangular pediment with brackets which imitate rafters. The main roof overhang is supported by brackets, the eaves are essentially boxed, with dentil detail. Fenestration is unremarkable, but the first

floor windows on the left are set in a slightly curved frame which hints of a bay window. The lower portion of the second story is slightly bellcast with rounded dentil details.

The building is associated with Charles H. Windham, who was Mayor of Long Beach in 1911. This home was built by him for his own use.

This is an excellent example of a California Craftsman house, in a formal and monumental house. It is broad and massive, with a rough-hewn stone foundation. The same stone is used for the living room fireplace. It is covered in wood siding and wood shingles, with prominent structural framing and projecting rafters. The symmetrical central entryway creates a more formal appearance. This is a fully restored, high quality example of a vernacular Southern California housing type typical of the period 1900-1914.

The granite porch, foundations and granite fireplace are unusual materials for the City of Long Beach, and represent a significant innovation in this building.

This home was part of the original City residential district, and constituted one of a number of large private residences built in the early 1900's close to the downtown business and civic center of the City. It remains intact and well preserved, and is an excellent example of an historic mansion in the City.

The large front door opens to a three hundred square foot (300') foyer graced by a white oak staircase leading to the upstairs rooms. To the immediate left upon entrance is a formal living room with original log burning fireplace. The living room is separated from the formal dining room by two (2) large oak pocket doors. To the immediate right upon entrance is a reception room also separated from the foyer by two (2) large pocket doors and originally used as a music room; and the outer door off the foyer leads to a library. The original bookcase is missing but the evidence of its existence can be seen on the hardwood floor behind the present bookcase. Upstairs, there is a large landing area with access to the sunporch. Mayor Windham occupied the bedroom upstairs on the southeast corner. The original fireplace faced with yellow brick has been restored. A long window seat running the length of the room has been removed at some point in time. A similar window seat had been in the bedroom on the southwest corner. That bedroom was occupied by the youngest daughter, Margarita, and today the room is named in her honor. The other bedrooms were for the other Windham children. They are typical bedrooms of that particular period, having substantial closets and grouped windows. The northeast bedroom includes two (2) casement windows in the east grouping.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

The building's exterior shall be regulated by the provisions of this Section. There shall be no restrictions on the building's interior.

Any alterations, modifications or repair of the building's exterior shall be consistent with its historic character.

No exterior changes, including repainting, shall be permitted unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission. (Ord. C-6666 § 1, 1989)

16.52.440 The Atlantic Studio.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Atlantic Studio.

A. Location, description and reasons for designation. Located at 226 Atlantic Avenue in the City of Long Beach, this small scale commercial structure combines Art Deco and Gothic Revival design in a very unique and distinctive facade. Built in 1933, this is a relatively late example of Art Deco styling, constructed at a time when the style had already gained popular acceptance. The

combination of Gothic Revival and Art Deco was sometimes used for "skyscrapers" of the late twenties and early thirties. Finding these styles on a small scale commercial building is unusual, and this building has a unique charm that is quite individual.

The Atlantic Studio is an established and familiar visual feature of downtown Long Beach, having existed there in unchanged form for fifty-six (56) years. Its unique and charming facade distinguishes it from other small commercial buildings.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character, and any alteration, modifications or changes shall follow the Secretary of Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings.

No environmental changes shall be permitted to the exterior of the building unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission or by the City Planning Commission, upon appeal, authorizing such environmental changes. Nothing in this Section shall be deemed to restrict internal modifications to the building not visible externally. (Ord. C-6672 § 1, 1989)

16.52.450 The Barker Brothers Building.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Barker Brothers Building.

A. Location, description and reasons for designation. Located at 215 Promenade Plaza in the City of Long Beach, the Barker Brothers Building was the headquarters building in Long Beach for Barker Brothers, a major retailer of Los Angeles. It was a major downtown department store, selling furniture. It symbolizes the economic growth of the City, and the development of downtown as a business and retail center.

The Art Deco architectural style was characteristic of 1929, the year it was constructed. Windows are grouped in vertical strips, divided by vertical piers and pilasters. Window spandrels contain a decorative motif, here a simple diamond.

The Barker Brothers Building anchors a prominent corner in downtown Long Beach, forming a visual pair with its neighbor across the Promenade, the Insurance Exchange Building. Both are an Art Deco pair, and are reminders of the commercial and business center of Long Beach of that period.

Finally, Barker Brothers' corner location at an important intersection of downtown Long Beach's major commercial streets makes it an established and familiar visual feature of the community.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character, and any alteration, modifications or changes shall follow the Secretary of Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings.

No environmental changes shall be permitted to the exterior of the building unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission or by the City Planning Commission, upon appeal, authorizing such environmental changes. Nothing in this Section shall be deemed to restrict internal modifications to the building not visible externally. (Ord. C-6665 § 1, 1989)

16.52.460 The Buffums Autoport.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning

Commission, the City Council designates the following building as an historical landmark in the City: The Buffums Autoport.

A. Location, description and reasons for designation. Located at 119-121 West First Street in the City of Long Beach, the Buffums Autoport is the only remaining remnant of the site of Long Beach's most prominent department store, Buffums, originally located at this site and demolished in 1980. The garage was added to the older store in 1940 in order to better accommodate the automobile, indicating the importance of automobile access to the retail trade.

The garage is a classic example of the Streamline Moderne, from its design to the "Autoport" sign. The choice of this style was not only typical of its era, but thematically appropriate, as the imagery of the Streamline Moderne style derived from modern transportation. Horizontal lines, streamlined curves, sleek geometric forms, flat continuous surfaces typical of the style alluded to the speed of modern cars, planes, trains, and ships in motion. The elegance of this garage design is evident in the antenna-like pole on top of the semicircular projection, and the Moderne styling of the Autoport sign.

The sophisticated and elegant architectural styling of a mundane function - a garage - is unusual and innovative, and should be an inspiration to the contemporary urban designers.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character, and any alteration, modifications or changes shall follow the Secretary of Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings.

No environmental changes shall be permitted to the exterior of the building unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission or by the City Planning Commission, upon appeal, authorizing such environmental changes. Nothing in this Section shall be deemed to restrict internal modifications to the building not visible externally. (Ord. C-6665 § 2, 1989)

16.52.470 The Security Pacific National Bank Building.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Security Pacific National Bank Building.

A. Location, description and reasons for designation. Located at 102-110 Pine Avenue in the City of Long Beach, the Security Pacific National Bank Building represents the financial and commercial growth of the City of Long Beach during the boom of the twenties. Originally called Security Trust and Savings Bank, it sprang from the 1921 merger of that institution with the earlier consolidation of National Bank of Long Beach and the Long Beach Trust and Savings Bank. P.E. Hatch, former cashier of the Bank of Long Beach and President of the National Bank of Long Beach, became vice-president and general manager of Security Bank's local activities. Offices above the bank housed prominent local law firms Clock McWhinney and Clock and Denio, Hart, Taubman and Simpson, and other important businesses.

Constructed in 1924, this is a classic Beaux Arts building of the twenties. Divided into three (3) parts of base, midsection, and attic, it is clad in contrasting light marble and dark red brick and crowned with a classical cornice. The three-story base has a recessed entryway behind giant Corinthian columns. The ornament is classically derived.

The Security Pacific National Bank Building was designed by prominent Los Angeles architects Curlett and Beelman, who had earlier designed the Farmers and Merchants Bank a few blocks

away. Curlett and Beelman's distinguished career included the Pacific Coast Club, and notable buildings in Los Angeles, among them the Elks Building. It is a prominent visual feature of the downtown streetscape, due to its location on a prime corner, and to its striking and elegant architectural design.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character, and any alteration, modifications or changes shall follow the Secretary of Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings.

No environmental changes shall be permitted to the exterior of the building unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage commission or by the City Planning Commission, upon appeal, authorizing such environmental changes. Nothing in this Section shall be deemed to restrict internal modifications to the building not visible externally, except that the interior public space known as the lobby contains valuable historic design features and materials, and should be preserved, and any alterations, additions, or changes affecting the lobby shall require a Certificate of Appropriateness from the Cultural Heritage Commission. (Ord. C-6665 § 3, 1989)

16.52.480 The American Hotel.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The American Hotel.

A. Location, description and reasons for designation. Located at 224-230 East Broadway in the City of Long Beach, the American Hotel is one of the oldest surviving commercial buildings in downtown Long Beach, and the second oldest one documented. Built in 1905, it is evidence of the first phase of Long Beach's commercial development in the early 1900s. It exemplifies mixed-use development typical of that period, with commercial shops on the ground floor and residential use on the upper two (2) floors. The Broadway facade shows characteristics of the Romanesque Revival style, popular in the 1890s. The broad, flat piers dividing the Broadway facade, the rusticated stone keystones and semicircular arches are typical of that style. This is a unique example of that style in Long Beach.

The American Hotel is one of the oldest commercial buildings in downtown Long Beach. Along with the 1906 First National Bank of Long Beach Building at First and Pine (now being restored and renovated), and the recently renovated Masonic Temple at 228 Pine (1903), it is a rare surviving commercial building from the early 1900s. It commemorates the early commercial development of downtown Long Beach, which makes it worthy of preservation.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character, and any alteration, modifications or changes shall follow the Secretary of Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings.

No environmental changes shall be permitted to the exterior of the building unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission or by the City Planning Commission, upon appeal, authorizing such environmental changes. Nothing in this Section shall be deemed to restrict internal modifications to the building not visible exter-

nally, but should the modernization of the ground floor storefronts be removed, the ground floor renovation should be externally consistent in materials and design with the historical period of the building. (Ord. C-6672 § 2, 1989)

16.52.490 The 312-316 Elm Avenue Commercial Building.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The 312-316 Elm Avenue Commercial Building.

A. Location, description and reasons for designation. Located at 312-316 Elm Avenue in the City of Long Beach, this building exemplifies the tremendous economic expansion that drove the City's growth in the twenties, spilling over even into the early years of the Depression.

Constructed in 1930, this building is one of the finest Art Deco buildings in downtown Long Beach, an excellent and intact example of that style. Remarkably, all the original storefronts survive in the original design, with recessed entryways and colored tile bases. The facade is grouped into three (3) sections by fluted piers. The second story windows are capped with chevrons, and covered with ornate Art Deco metal grilles. The design is entirely unaltered, and retains the freshness and exuberance of the Jazz Age. Its architecture quality deserves to be preserved. It is one of a number of small-scale Art Deco commercial buildings in downtown Long Beach which recall the City's economic growth in the twenties. This was the second major phase in the City's growth and development, the first one occurring in the early 1900s.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character, and any alteration, modifications or changes shall follow the Secretary of Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings.

No environmental changes, including repainting, shall be permitted to the exterior of the building unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission or by the City Planning Commission, upon appeal, authorizing such environmental changes. Nothing in this Section shall be deemed to restrict internal modifications to the building not visible externally. (Ord. C-6672 § 3, 1989)

16.52.500 First United Presbyterian Church.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: First United Presbyterian Church.

A. Location, description and reasons for designation. Located at 600 East Fifth Street in the City of Long Beach, First United Presbyterian Church represents the history and development of religious institutions in the City of Long Beach. The Presbyterian denomination established its first foothold in Long Beach on this site, with the founding of its congregation and the construction of its original building here in 1905. The existing building, constructed in 1939, is an outstanding example of Gothic Revival style, a style particularly appropriate for churches, based on European examples of the Gothic style of the middle ages. This style was often used for churches in the first two (2) decades of this century in the U.S.A.

The great Gothic-styled wood beamed ceiling of the church sanctuary represents a unique type of Gothic Revival design within the parameters of that style. Additionally, the U-shaped landscaped courtyard evokes a cloistered configuration reminiscent of European precedents and the notion of "sanctuary" as an oasis within the City.

The First United Presbyterian Church building represents an established and familiar visual feature of a neighborhood or community due to

its unique location or specific distinguishing characteristics, its distinctive Gothic Revival architecture constitutes an important visual landmark on a prime corner of downtown Long Beach.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

The building's interior and exterior shall be regulated by the provisions of this Section.

Any alterations, modifications or repair of the building's interior or exterior shall be consistent with its historic character, and no changes of any kind, including repainting, shall be permitted unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission. (Ord. C-6672 § 4, 1989)

16.52.510 Walkers Department Store.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: Walkers Department Store.

A. Location, description and reasons for designation. Located at 401-423 Pine Avenue in the City of Long Beach, Walkers Department Store exemplifies the burst of retail development that occurred in the twenties as part of an economic boom in Long Beach. Several local department stores were established around that time (i.e., Famous, now Thrifty Drugs, Buffums, Barker Brothers), most of which are today out of business. Pine Street was then the primary shopping district of Long Beach. This building is associated with Long Beach's tremendous economic growth in the twenties, and the flourishing of local retail business.

The architectural style of Walkers Department Store blends two (2) distinct traditions: Art Deco and Renaissance Revival. The rectangular building profile, balance between verticals and horizontals, and solidity of a distinct ground floor base are Renaissance Revival characteristics. However, the vertical ground pilasters, grouping of windows, decorative window spandrels, and decorative motifs are Art Deco in nature. Constructed in 1929, the architecture of this building exemplifies the transition from a traditional style to a new modern style. Meyer and Holler, the architects, was a prominent Los Angeles firm whose most famous building was Grauman's Chinese Theater in Hollywood. They also designed two (2) other Hollywood landmarks: Grauman's Egyptian Theater and the Security Pacific Bank. In Long Beach they designed the Fox West Coast Theater (demolished) and the Ocean Center Building.

Walkers Department Store is part of the original Pine Avenue retail commercial district during the boom years of the twenties, representing the economic growth of Long Beach and recalling the predominance of Pine Avenue as downtown's major retail corridor.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

The building's interior and exterior shall be regulated by the provisions of this Section. There shall be no restrictions on the building's interior.

Any alterations, modifications or repair of the building's exterior shall be consistent with its historic character.

No exterior changes, including repainting, shall be permitted unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission. (Ord. C-6672 § 5, 1989)

16.52.520 The Engine Company No. 8 Building.

Pursuant to provisions of Chapter 2.63 and with the recommendation of the Planning Com-

mission, the City Council designates the following building as an historical landmark in the City: The Engine Company No. 8 Building.

A. Location, description and reasons for designation. Located at 5365 East Second Street in the City of Long Beach, Fire Station No. 8 represents the expansion of City services to the neighborhood of Belmont in a combined fire and police facility.

Opened as the Belmont Fire and Police substation on August 1, 1929, it housed two (2) fire platoons. The police substation, the first in the City, opened the following month.

The Italian Renaissance Revival style evidenced here occurs throughout the twenties as one of several popular "period revival" styles. Its use as late as the late twenties indicates a conservative choice for a public building, and one that blends in well with its surrounding neighborhood. The red tile roof is an explicit Mediterranean characteristic.

This landmark is part of a collection of small-scale period revival commercial buildings on Second Street, and relates to homes in the surrounding neighborhood characterized by Mediterranean-styled homes. It is an established and familiar visual landmark of Belmont Shore due to its architectural character and to its corner location at the east end of the Second Street commercial strip.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character, and any alteration, modifications or changes shall follow the Secretary of Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings.

No environmental changes shall be permitted to the exterior of the building unless a certificate of appropriateness has been applied for and approved by the Cultural Heritage Commission or by the City Planning Commission, upon appeal, authorizing such environmental changes. (Ord. C-6682 § 1, 1990)

16.52.530 The Golden House.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Golden House.

A. Location, description and reasons for designation. Located at 628 West Tenth Street in the City of Long Beach, the Golden House is one of the earliest built in Willmore City c.1886, and the oldest known remaining building in the City of Long Beach.

It is associated with the life of persons significant in the past having been built by William Widney and later owned by C.D. Paine, F.W. Stearns and Stephen Townsend.

This Carpenter Gothic cottage styled building is a particularly small-sized example of its style and may have been a "display" model, or built as a land sales office or depot prior to use as a residence. The cottage is of single-wall construction and is the last known example of this type of construction to have survived intact in the City.

Golden House dates back to the early Willmore City days, pre-Long Beach and is of an architectural style that was not often used in the area. It may have been the first building in the then-newly developing west side of the townsite of Willmore City. Its single-wall construction was common to the time and provides information on lifestyles in early Willmore City. Wall coverings and ceiling materials which are labelled "Steinway and Sons, New York" also give information about the early life of the citizens, as do the variety of wall coverings, paint colors, and floor coverings which exist in the building.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference,

and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character, and any alteration, modifications or changes shall follow the Secretary of Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings.

No environmental changes, including repainting, shall be permitted to the exterior of the building unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission or by the Planning Commission, upon appeal, authorizing such environmental changes. Nothing in this Section shall be deemed to restrict internal modifications to the building not visible externally. (Ord. C-6682 § 2, 1990)

16.52.540 The Masonic Temple.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Masonic Temple.

A. Location, description and reasons for designation. Located at 835 Locust Street in the City of Long Beach and constructed in 1927, the Masonic Temple was the headquarters of a major social institution, whose members included many prominent citizens of Long Beach. The building served as the headquarters for an important fraternal order, and was used by many other service clubs of Long Beach as well.

The Greek Revival architectural style was one of a number of period revival styles popular during the 1920s. The severe Greek classical temple facade of this building invokes memories of classical antiquity.

The building contains a number of large assembly halls typical of a fraternal social order. In this building, each haIl is decorated in a different exotic revival style: Egyptian, Roman, etc. The building also contains a fully equipped theater.

The architects, Parker O. Wright and Francis H. Gentry, had distinguished careers in the City of Long Beach. They designed the Scottish Rite Temple, the First Methodist Church at Third and Linden, thirteen (13) Long Beach schools and twenty-five (25) schools in Southern California, and many residences and businesses. Due to its scale and its imposing architectural features, it stands out in its community as a unique and monumental building, and as such represents an established and familiar visual feature of its neighborhood.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983) as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

Any alterations, modifications or repair of the building shall be consistent with its historic character, and no changes of any kind, including exterior repainting, shall be permitted unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission. (Ord. C-6682 § 3, 1990)

16.52.550 The Pacific Tower.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Pacific Tower.

A. Location, description and reasons for designation. Located at 205-19 Long Beach Boulevard in the City of Long Beach, The Pacific Tower was the first twelve-story office building in Long Beach when built in 1923, and was the first "Own-Your-Own" office building in the United States.

Attorney Joseph A. Ball's first private office was in the building as were the offices of Attorneys William H. Cree, Walter Desmond, Jonah Jones, Jr., Clark and Thomas Doyle, C.V. Hawkins, F.A. Knight and Phillip H. Goddard, Donald P. Lane and Lewis P. Lane, George F. Kapp, and Stephen G. Long, Jr.; the offices of doctors F.C. Hertzog, R.L. Buffum, and Izak Alcazar; the offices of architects Horace Austin and C.H. Gibbs.

These prominent citizens are just a few of Long Beach's pioneers who are listed in City Directories with offices in this building.

Naomi Celeste Tompkins, Vice-President of City National Bank at the time the building was built, was thought to be the only female vice-president of a national bank at that time.

Government offices were located in the building and included the U.S. Coast Guard, State Board of Equalization, the U.S. Federal Housing Administration, State Board of Education, and U.S. Probation Offices.

It is significant that the Times Mirror Company of Los Angeles owned the building. And, that the Western Headquarters of the AARP in Long Beach moved to this building in 1967 and named the building after their founder, Dr. Ethel Percy Andrus.

The Renaissance Revival style was the prestigious architectural style of the mid-twenties for major commercial buildings, hotels, and other significant structures. This building remains one of the most visually prominent and handsome buildings in downtown Long Beach. The architect, W. Horace Austin, was a prominent Long Beach architect who practiced from 1900 to 1942. His obituary called him the "Dean of Architects" in Long Beach. He designed the old City Hall (demolished) Horace Mann Elementary School, Wilson High School, the original Buffum's Department Store (demolished), the YMCA (demolished), the Long Beach Airport Terminal, the Press-Telegram Building, and many other buildings and residences. He was a resident architect on the Municipal Auditorium. In Santa Ana he designed City Hall, the Masonic Temple and the Bower Memorial Museum. The Seal Beach City Hall and Fire Station and the San Pedro Post Office and Customs House were also Austin designs. He worked in Bellflower, Perris, Riverside and Whittier as well.

This twelve-story building complements the Insurance Exchange Building and the Barker Brothers Building along Broadway and, together, they anchor the corners of Long Beach Boulevard and The Promenade.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983) as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

The building's exterior shall be regulated by the provisions of this Chapter. There shall be no restrictions on the building's interior.

Any alterations, modifications or repair of the building's exterior shall be consistent with its historic character. No exterior changes, including repainting, shall be permitted unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission. (Ord. C-6682 § 4, 1990)

16.52.560 St. Anthony's Church.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: St. Anthony's Church.

A. Location, description and reasons for designation. Located at 540 Olive Avenue in the City of Long Beach, St. Anthony's Church is the major Catholic church of Long Beach, and the "mother" church from which this religious institution grew. First founded on this site in 1902, successive buildings mirrored the growth of the congregation and the development of the City. Outgrowing the first building which was dedicated in 1903, the second church of 1914 was destroyed in the 1933 earthquake. It was quickly rebuilt and dedicated in early 1934. The facade with mosaics was added in 1953. This building is associated with an important religious institution and with the history and development of Long Beach.

The Gothic Revival style was popular in ecclesiastical architecture. This is a particularly rich and ornate version of that style, with the use of mosaic decoration reflecting an Italian heritage. The use of mosaic decoration on the church facade and the interior of the sanctuary represents

unusual craftsmanship and innovation in Southern California. The mosaic work was executed by Italian craftsmen, and imported and installed on-site. The coloristic richness of the facade achieved by this means lends decorative distinction to this building.

The building is situated at the edge of a residential neighborhood, and has a strong visual presence there. Its scale, colorful facade and twin towers are strong distinguishing visual characteristics which make it a neighborhood landmark.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

The above standards and guidelines shall apply solely to the church sanctuary, the large ficus tree in front of the rectory and the statue of St. Joseph in the garden. Any alterations, modifications or repair of these features shall be consistent with their historic character, and no such changes shall be permitted unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission. (Ord. C-6682 § 5, 1990)

16.52.570 St. Luke's Episcopal Church.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: St. Luke's Episcopal Church.

A. Location, description and reasons for designation. Located at 703 Atlantic Avenue in the City of Long Beach, St. Luke's Episcopal Church has been a center of religious, social and cultural activities in Long Beach since a church was first built on this site in 1917. After being destroyed by the 1933 earthquake, the rebuilding of the church demonstrated the commitment of church leaders in the face of disaster. The Reverend Perry G.M. Austin, rector of the church during this time, mobilized nationwide support for the rebuilding of the church, including Eleanor Roosevelt, J.P. Morgan, Felix Dupont, Judge Augustus Hand and Senator Walter G. McAdoo, among his donors. The cornerstone for the rebuilding was laid on March 19, 1934, just a year and nine (9) days after the earthquake. The dedication on July 15th attracted an enormous crowd. Many prominent local citizens were members of the congregation. It exemplifies the cultural (religious), social and historical heritage of the City in relation to a major religious institution which has been located at this site since 1917.

The architectural style, Gothic Revival, appears often on historic churches. This version of the style, English/Tudor Gothic Revival, exemplifies period revival architecture of the teens and twenties.

The site consists of a complex of separate buildings unified in a rectangular plan around a central open courtyard. The inclusion of an open courtyard as a spatial feature uniting various buildings is reminiscent of a medieval cloister. The entry narthex is also reminiscent of an architectural feature found in early medieval churches. It represents an established and familiar visual feature of a neighborhood or community due to its unique location or specific distinguishing characteristic. Its prominent location at the corner of Seventh and Atlantic, and its single tower crowned with a tall copper spire, make it a visual landmark in the community.

The building contractor, C.T. McGrew, had a long and distinguished career in the City, and constructed many buildings which have become City landmarks or are known as significant buildings, such as the First Congregational Church, the Pacific Coast Club, Belmont Methodist and Congregational Churches, and numerous business buildings.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference,

and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

The general guidelines and standards shall apply solely to the structure bounded by Atlantic Avenue, Seventh Street and the alley westerly of Atlantic Avenue. No part of this Section shall apply to church property on the westerly side of said alley.

Any alterations, modifications or repair of the affected features shall be consistent with its historic character, and no such changes shall be permitted unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission. (Ord. C-6682 § 6, 1990)

16.52.580 The First Church of Christ Scientist.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The First Church of Christ Scientist.

A. Location, description and reasons for designation. Located at 440 Elm Avenue in the City of Long Beach and built in 1913, the First Church of Christ Scientist was Long Beach's first Christian Science Church. As such, it established an important religious institution in this City. Additionally, this church was one of the few downtown churches to survive the 1933 earthquake relatively undamaged and, therefore, is one of the oldest churches in Long Beach.

This building is an excellent example of the classic Renaissance Revival style of architecture, derived from European models, which was popular during the early years of this century for monumental buildings of public importance. Its red tile roof is reminiscent of more vernacular Mediterranean or Spanish Colonial Revival architecture typical of this region.

The architect, Elmer Grey, was an important Los Angeles architect who designed many buildings which today are considered to be landmarks: the Beverly Hills Hotel, the Pasadena Playhouse, and the First and Second Churches of Christ Scientist in Los Angeles, in association with Myron Hunt, he also worked on Occidental College. He also designed many notable homes and mansions.

This landmark is part of a collection of monumental historic churches built in downtown Long Beach in the teens and twenties, and embodies a particular cultural theme related to the diversity and strength of these religious institutions in this City. Its monumental scale and impressive architecture features make it a visual landmark downtown.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character, and any alteration, modifications or changes shall follow the Secretary of Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings.

No environmental changes shall be permitted unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission or by the City Planning Commission, upon appeal, authorizing such environmental changes. (Ord. C-6699 § 1, 1990)

16.52.590 The Thrifty Drug/Famous Department Store.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Thrifty Drug/Famous Department Store Building.

A. Location, description and reasons for designation. Located at 601-609 Pine Avenue in the City of Long Beach, the Thrifty Drug/Famous Department Store Building was originally built as the Famous Department Store Building in 1929. Located at a prime corner in downtown Long

Beach, it demonstrates the economic growth of Long Beach in the twenties in the retail sector. The oil industry and tourism propelled the boom of the twenties in Long Beach, encouraging new commercial growth such as this new store.

The building is one of the finest examples of Art Deco in downtown Long Beach, and is a strong visual presence on a prominent corner. Typical of the Art Deco style are the stepped back vertical piers, the vertical grouping of windows, and the chevron design motif. The 1937 top floor addition shows the influence of the International Style, but integrates skillfully in the older building.

The architectural firm of Morgan, Wall and Clements created major landmark buildings in Los Angeles and Southern California, significantly influencing the urban design of the region. Their work includes the Wiltern Theater, the Samson Uniroyal Tire Factory in Commerce, the Chapman Buildings, the Owl Drug Company, the Mayan Theater, the Belasco Theater, the Pantages Theater, the Richfield Building (demolished) and many others.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

Any exterior alterations, modifications or repair of the above structure shall be done so in keeping with its historic character, and any exterior alterations, modifications or changes shall follow the Secretary of Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings.

No environmental changes shall be permitted to the exterior of the building unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission or by the City Planning Commission, upon appeal, authorizing such environmental changes. Nothing in this Section shall be construed to restrict internal modifications to the building not visible externally. (Ord. C-6691 § 1, 1990)

16.52.600 453 Cedar Avenue.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: 453 Cedar Avenue.

A. Location, description and reasons for designation. Located at 453 Cedar Avenue in the City of Long Beach, this house is an important, high quality example of late Victorian residential architecture, built in the early twentieth century during the first period of extensive settlement in the City when its first residential neighborhood was developed. This neighborhood was located close to the downtown business quarter. The large scale and architectural grandeur of many of these houses indicate that they were built for prominent and successful local citizens. The house at 453 Cedar is an excellent example of this type of structure, and maintains its historical characteristics intact.

The house is an excellent example of late Victorian architecture, with Colonial Revival overtones, constructed in 1905. Its tall proportions, double recessed porches, bay windows, and decorative fish-scale shingles in the front gable are typical features of the Victorian style. Colonial Revival elements appear in the second story balustrade, the classically shaped capitals of the rectangular porch supports, the molded entablatures dividing each story, the lintel with brackets inside the front gable, and the pediment shape of the gable.

This is a major contributor to the City's first residential district, and should be preserved as evidence of the wealth, importance and social aspirations of those early residents.

It is prominently sited on a corner, and because of its scale, architectural grandeur and tall proportions, constitutes a visually prominent landmark in its neighborhood.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings"

prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

Any exterior alterations, modifications or repair of the above structure shall be done so in keeping with its historic character, and any exterior alterations, modifications or changes shall follow the Secretary of Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings.

No environmental changes, including repainting, shall be permitted to the exterior of the building unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission or by the City Planning Commission, upon appeal, authorizing such environmental changes. Nothing in this Section shall be construed to restrict internal modifications to the building not visible externally. (Ord. C-6691 § 2, 1990)

16.52.610 629 Atlantic Avenue.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: 629 Atlantic Avenue.

A. Location, description and reasons for designation. Located at 629 Atlantic Avenue in the City of Long Beach, this large, late-Victorian residential structure is a visible reminder of an earlier period in Long Beach's history, when Atlantic Avenue was lined with large single-family residential homes. The homes built in the late nineteenth and early twentieth centuries have been replaced by commercial structures and multifamily building as the street developed into a primary business corridor. This is one of the only structures to survive on Atlantic from the first residential phase of the street's history. Built in 1906, it is one of a number of similar buildings of the period downtown that formed Long Beach's first residential district. Thus, it is linked in architectural style and historical period with other similar residential structures which have survived over time, evoking the character and the geography of the first phase of Long Beach's residential development. This building has been a prominent part of the streetscape of a major Long Beach street since the early twentieth century, and has become even more unique over time as the street has developed with new construction around it. Today, its Victorian architecture is an established and familiar feature of the street and is unique in its linkage to the past.

This is an excellent example of late Victorian architecture, with many of the features of the Queen Anne style. Its tall configuration of three (3) stories, the cross gable roof, the asymmetrical composition, bay windows and decorative shingles are all hallmarks of that style.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

Any alterations, modifications or repair of the building shall be consistent with its historic character, and no changes of any kind, including exterior repainting, shall be permitted unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission. Nothing in this Section shall be construed to restrict internal modifications to the building not visible externally. (Ord. C-6691 § 3, 1990)

16.52.620 The Second Church of Christ Scientist.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Second Church of Christ Scientist.

A. Location, description and reasons for designation. Located at 302—7th Street/655 Cedar Avenue in the City of Long Beach, The Second Church of Christ Scientist is a magnificent example of Italian Renaissance church architecture,

with beautifully designed interiors. It is an important work of architecture, and testifies to the strength and pride of the religious institution which commissioned it, it evidences the growth of the Christian Science Church, which constructed this large-scale church in 1924 just eleven (11) years after its first monumental church at 440 Elm. It is an excellent example of Renaissance Revival classicism, based on models from Roman antiquity. The freestanding two-story Corinthian columns of the open portico, framed by paired pilasters, the classical entablature and triangular pediment, and the central dome, are all hallmarks of that style. The lower story exterior facing simulates cut stone blocks. Three (3) sides of the structure are symmetrical, with a central pediment. A photograph and description of this building is used in the important reference book on Southern California architecture, Gebhard and Winter's "Architecture in Los Angeles: A Complete Guide" (1985). It appears on page 478 as an example of Beaux Arts, City Beautiful Classicism. It is one of a group of historic churches downtown built in period revival styles on a monumental scale, evidence of the strength and contribution of religious institutions to the environment of downtown Long Beach. It is evidence of a cultural motif, based upon the vitality of organized religious institutions in Long Beach. Architecturally, most of these churches were designed either in Renaissance Revival or Gothic Revival styles.

Its monumental scale, its simple and powerful architectural elements, and its prominent corner location give it a visual prominence in a lot scale residential neighborhood and make it a landmark of the community.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

The building's interior and exterior shall be regulated by the provisions of this ordinance.

Any alterations, modifications or repair of the building's interior or exterior shall be consistent with its historic character. No interior or exterior changes, including repainting, shall be permitted unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission. (Ord. C-6691 § 4, 1990)

16.52.630 The First Methodist Episcopal Church/Christian Outreach Appeal Building.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The First Methodist Church/Christian Outreach Appeal Building.

A. Location, description and reasons for designation. Located at 503-15 East Third Street in the City of Long Beach, the First Methodist Episcopal Church/Christian Outreach Appeal Building is one of a group of monumental historic churches constructed downtown to serve the expanding religious needs of the growing City. This was the first Methodist Episcopal Church in Long Beach, built in 1924.

The architectural design of this church is primarily Colonial Revival. The two main facades of the building, which is sited on a prominent corner downtown, are defined by a classical temple front in white, in relief on the brick facade. Between the engaged Doric pilasters are large arched windows, divided into two (2) stories and subdivided into rectangles, arches and circles. The glass is original, and is tinted in subtle pastels. The corner doorway is a Classical Renaissance design with a triangular pediment. Other Colonial Revival elements are the corner quoining, the projecting cornice, the brackets supporting the cornice, the fanlight inside the main pediment. The use of red brick with white decorative accents is also typical of that style.

The architects, Parker O. Wright and Francis H. Gentry, were important and influential architects with their office in Long Beach. They specialized in schools and public buildings, designing

more than twenty-five (25) schools in Southern California. In Long Beach, they were architects for the Horace Mann School, the John C. Fremont, Temple Avenue and the Seaside Schools. They drew the plans for the Burnett Library, for the Fire Stations Nos. 7 and 8, and the Fire Alarm Bureau. They designed the Scottish Rite Masonic Temple and the York Rite Masonic Temple, both designated City landmarks. Mr. Gentry, a structural engineer, was himself a member of the Masonic Club, as well as other civic organizations.

The building's prominent siting on a corner location downtown, its large scale and elegant design, give it visual prominence downtown. It has been an established and familiar visual feature of the downtown community for sixty-five (65) years.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

Only the building's exterior shall be regulated by the provisions of this ordinance. Any alterations, modifications or repair of the building's exterior shall be consistent with its historic character. No exterior changes, including repainting, shall be permitted unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission. (Ord. C-6762 § 1, 1990)

16.52.640 The Long Beach Airport Terminal.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Long Beach Airport Terminal.

A. Location, description and reasons for designation. Located at 4100 East Donald Douglas Drive in the City of Long Beach, the Terminal is part of an airport that is significant as the first municipal airport in the Southern California region, preceding LAX by three (3) years. Long Beach was a pioneering center of aviation in Southern California, with the accomplishments of men such as Earl S. Daughtery and Calbraith Henry Rodgers. Rodgers completed the first transcontinental flight from New York to Long Beach in 1911, Daughtery built airplanes, ran a flying school, encouraged the City to found a municipal airport and, in many ways, advanced the field of aviation in its early days. Long Beach Airport was originally called Daughtery Field. Two (2) other Long Beach aviation adventurers, Clyde Schlieper and Wes Carroll, set a world's record in 1939 for the longest sustained flight thirty (30) days in the air. They departed and returned to Marine Stadium in Alamitos Bay.

The Long Beach Airport has been a significant part of the City's economy since its founding in 1924, and an important factor in Long Beach's economic growth. The establishment of Douglas Aircraft Co. in Long Beach in 1940 (today, McDonnell Douglas) was primarily due to the existence of the Long Beach Airport.

The Airport Terminal (1941) is a masterpiece of the early modern style, bridging the transition from the modernistic Streamline Moderne style of the 'thirties to the geometric abstraction of the post-war International Style. It was an avant-garde work of architecture for its time, and is a unique building in the City of Long Beach. The architects, W. Horace Austin and Kennth Wing, Sr., were important Long Beach architects, each with a significant body of work in the City and the region. Austin's designs include the Long Beach City Hall, the Pacific Tower, the Woodrow Wilson and Horace Mann High Schools, the YMCA building, the original Buffum's Department Store (demolished), the Press-Telegram building, the San Pedro Post Office, the Santa Ana City Hall, the Bower Museum in Santa Ana and the Santa Ana Masonic Temple. Kenneth Wing designed the Harriman-Jones Clinic, the Southern California Edison building, the physical education building and cafeteria at California State University, Long Beach, and a number of schools, churches and fine homes. He was associated with Allied Architects in the design of Long Beach City Hall and Library, and

the Terrace Theater and Exhibit Halls. He was also involved with the design of the original main building of the Memorial Medical Center of Long Beach.

The use of ceramic mosaic floor tiles throughout the building was an innovative way to include extensive mural decoration as public art in a building with a lot of glass and other functional constraints. The themes and decorative style of the ceramic murals were unique and innovative. Although the imagery was representational, the stylized forms reflected modern post-war artistic trends. The symbolic elements were selected to enrich the experience of the traveler, and evoke a larger context for air travel with allusions to other forms of transportation and communication in the world.

The Airport Terminal is the quintessential theme building of the airport, and its signature element. It should be preserved as reflecting the identity and distinctiveness of the Long Beach Airport.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

Any alterations, modifications or repair of the building's exterior or interior shall be consistent with its historic character. No exterior or interior changes, including repainting, shall be permitted unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission. (Ord. C-6730 § 1, 1990)

16.52.650 The Long Beach Museum of Art.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Long Beach Museum of Art.

A. Location, description and reasons for designation. Located at 2300 East Ocean Boulevard, the Long Beach Museum of Art was built in 1912 as a summer home by Elizabeth Milbank Anderson, a wealthy philanthropist and heir to Jeremiah Milbank, who was a financier, a co-founder of the Borden Company, and a founder of the Chicago, Milwaukee and St. Paul Railroad (in 1863, later extended to the Pacific Coast). According to Fortune magazine, "A number of Milbanks have been considerable figures in the industrial history of the U.S. and the family has also left its mark on the educational and medical institutions of the country." (May 1959) Elizabeth Milbank Anderson (1850-1921) was an energetic, strong-minded woman with a wide range of interests. She was a successful businesswoman, a philanthropist, and an art collector who traveled frequently to Europe. She established Milbank Memorial Fund in 1905, which gave grants to various medical and educational projects; this fund is still in existence. She donated a library to Greenwich, Connecticut, and gave three (3) blocks of choice New York City land to Barnard College, upon which was built Milbank Hall. She built public facilities for the poor, such as a sports arena and public baths, and established a program of free school lunches. Her husband, Abram A. Anderson, was a well-known portrait painter and friend of Teddy Roosevelt.

This large house was built on the bluff to take advantage of one of the City's prime assets - the ocean view. The house is a splendid and imposing example of the Craftsman Bungalow, a style popular in the period 1905 - 1915. It is similar to others of that style built around the same time near the ocean bluff along Ocean Boulevard and First and Second Streets in what is now the Bluff Park Historic District, and thus represents an early stage in the residential development of Long Beach. Later, in 1926, the home became the Club California Casa Real, an important social institution of Long Beach. It was owned from 1929 - 1944 by Thomas A. O'Donnell, a pioneer oil industrialist. During the Second World War, it was used by the Navy as the Chief Petty Officers' Club. In 1950, it was purchased by the City for a Municipal Art Center and was renamed in 1957 as the Long Beach Museum of Art. Thus, its succession of uses has mirrored important stages in the history of the City.

The building is a classic example of the California Craftsman Bungalow, using the natural materials and rugged texture of wood shingles and clinker brick. The prominent gables, projecting rafter beams and horizontally are all typical of the style. The exterior of the main house and carriage house retain their original integrity and have not been altered. This style is echoed by several similar homes nearby in the Bluff Park Historic District.

The Milwaukee Building Company was an influential architectural firm which did other work for the Milbank family and associates. Isaac Milbank, a co-founder of the Borden Milk Company and an oil investor, had a magnificent Craftsman summer home constructed for him in 1911 by the Milwaukee Building Company on a bluff overlooking the ocean in Santa Monica. At the same time, the Milwaukee Building Company constructed a similar home on the same street in Santa Monica for retired hotel proprietor Henry Weaver, who owned several Midwest hotels.

The Milwaukee Building Company later became the Los Angeles firm of Meyer & Holler, an eminent firm which constructed numerous landmark buildings. Their most famous designs were the Chinese and Egyptian Theaters in Hollywood. In Long Beach, they designed the Ocean Center Building, Walkers Department Store and the Fox West Coast Theater (demolished).

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised 1983), as amended, are incorporated by reference, and the following additional guidelines and standards as recommended by the Cultural Heritage Commission are adopted:

Any exterior alterations, modifications or repair of the above structure shall be done so in keeping with its historic character, and any exterior alterations, modifications or changes shall follow the Secretary of the Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings.

No environmental changes shall be permitted to the exterior of the building unless a certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission or by the City Planning Commission, upon appeal, authorizing such environmental changes. Nothing in this Section shall be construed to restrict internal modifications to the building not visible externally. (Ord. C-6730 § 2, 1990)

16.52.660 The Harnett House.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Harnett House.

A. Location, description and reasons for designation. Located at 730 Sunrise Boulevard in the City of Long Beach, the Harnett House was built in 1918 by one of Long Beach's pioneer families, who emigrated here from England in 1889 and first settled on a nearby farm. Many members of this family contributed significantly to the educational, civic and cultural development of Long Beach, most notably: Jane Elizabeth Harnett, head of the History Department of Long Beach High School and Polytechnic High School, author of the first history of the City of Long Beach and participant in the City Charter revision; Tom Harnett, one of the founders of St. Luke's Episcopal Church; Edward H. Harnett, Director of Public Service and City Engineer for the City of Long Beach; Dr. Frank Harnett, Director of Municipal Recreation for the City of Long Beach 1933 - 1962 and founding Chairman of the Cultural Heritage Committee for the City.

Harnett House has been in the continuous ownership of one (1) family, a family which was one of the pioneer settlers in the City, arriving here from England in 1889. It is a large and excellent example of the Craftsman bungalow style, which was prevalent throughout the period c. 1900 -1920. The use of brick for the chimney, pillars and foundation walls, exterior walls clad in wood clapboard and shingles, prominent gable, three-part windows with multipane lights at the top, flat board window and door frames, and deep porch are all typical features of this style. This variation

uses Tudor half-timber patterns inside the gables, an element sometimes found within the Craftsman style.

Architect Kenneth S. Wing remodeled the house in 1944, expanding the rear portion of the house and kitchen. It is one of the largest and most impressive of a grouping of Craftsman bungalows existing in its neighborhood, which forms a potential bungalow historic district. The curving streets of Lime Avenue, Olive Avenue, Vernon Avenue and Sunrise Boulevard bounded by Atlantic on the west, Willow on the north, the PE Right-of-Way on the south and the City of Signal Hill on the east contain a number of Craftsman bungalows, both large and small, as well as other early architectural types, that may become a designated historic district. This is one of the most visually prominent Craftsman bungalow homes in the neighborhood.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and they, along with the following additional guidelines and standards as recommended by the Cultural Heritage Commission shall apply to the landmark:

Any alterations, modifications or repair of the building's exterior shall be consistent with its historic character. No exterior changes, including repainting, shall be permitted unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission. (Ord. C-6732 § 1, 1990)

16.52.670 240 Long Beach Boulevard.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: A commercial structure at 240 Long Beach Boulevard.

A. Location, description and reasons for designation. Located at 240 Long Beach Boulevard in the City of Long Beach, this commercial building was built in 1924 and has been in continuous commercial use in downtown Long Beach for over fifty (50) years. Its Streamline Moderne facade, added in the 1930s, is an intact and typical period piece. Framed by curving piers with vertical accents, the facade exhibits the typical three (3) horizontal lines and chevron moldings. The south pier rises in three (3) curved steps to form a characteristic tower reminiscent of the contemporary "skyscrapers". The separation of the transom from the display windows below is typical of the original 1924 building. The facade, a classic Streamline Moderne design, is the result of post-earthquake repairs, representing the rebuilding of downtown Long Beach in the "modernistic" style of the 1930s.

As home to Acres of Books, it is an established and familiar feature on Long Beach Boulevard that has a regional attraction. Acres of Books is a unique and highly valued bookstore which has been in continuous operation as a family-run business for over fifty (50) years. It is a mecca for bibliophiles, and is widely recognized as a unique cultural resource all over the region.

Bertrand Smith, who established Acres of Books in Long Beach in 1936, was a nationally recognized antiquarian book dealer. In 1959 he made a very generous and important gift to the City of Long Beach, donating more than two hundred and fifty (250) rare and old editions to the Long Beach Public Library. These volumes are now kept in the Miller Room. As a philanthropist and benefactor to the City and its people, Mr. Smith was a person significant in the past.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and they, along with the following additional guidelines and standards as recommended by the Cultural Heritage Commission shall apply to the landmark:

Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character, and any alteration, modifica-

tions or changes shall follow the Secretary of Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings.

No environmental changes shall be permitted to the exterior of the building unless a Certificate of Appropriateness has been applied for and approved by the Cultural Heritage Commission or by the City Planning Commission, upon appeal, authorizing such environmental changes. (Ord. C-6763 § 1, 1990)

16.52.680 320 East Bixby Road.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: A mixed use residential/commercial structure at 320 East Bixby Road.

A. Location, description and reasons for designation. Located at 320 East Bixby Road in the City of Long Beach, this mixed use residential/commercial building was designed by Edward A. Killingsworth, FAIA in 1960. It is set on a small site of forty-five feet (45') by one hundred thirty feet (130'). The building is a glass cube with structural steel supports, framed by seventeen foot (17') high perimeter walls adjacent to a reflecting pool and landscaping. The perimeter walls, placed perpendicular to the street, create a dramatic vista which leads the eye inward, reinforced by a processional of rhythmically spaced crossbeams and a series of stepping stones placed in the reflecting pool. These walls are constructed of wood lath and plaster, surfaced with a pebbly texture and softened with Boston Ivy. The entry courtyard is articulated at the midpoint by a simple vertical slab which is open at both sides and which separates a front and rear courtyard. The second courtyard space contains a staircase with floating treads leading to a mezzanine level, with a landscaped garden beneath. At the top, a lath sunscreen frames the courtyard entry space, creating a rich pattern of light and shadow and reinforcing the dramatic entry vista.

The glass walls extend from floor to ceiling, creating an interior space seventeen feet (17') high, with the transparent walls allowing a spatial flow between the interior and exterior. The structural steel frame and its bolts are expressed as part of the design. The landscaping, also designed by the architect, is integrated with the architecture, creating visual accents and softening the geometric shapes.

With its enclosing perimeter walls, the focus of the building is inward, on the interior courtyard and glass-walled interior spaces.

The crisp, pure geometry of design, the interweaving of interior and exterior spaces, and the use of modern industrial materials such as steel supports and glass walls, are hallmarks of the International Style.

The subtle balance of proportions, delicate and graceful forms, clarity of spatial articulation, tall soaring spaces, integration of landscaping and architecture, and use of stepping stones over a reflecting pool at the entryway, are all characteristic of Mr. Killingsworth's style.

This building won numerous architectural awards, the most prestigious being the First Prize in the 1961 Sao Paulo Biennial in Sao Paulo, Brazil, selected from entries from fifty (50) countries. Submissions to the Biennial were made by the national headquarters of the American Institute of Architects in Washington, D.C., a prescreening process that lent additional weight to the quality of work selected to represent America in this important competition. The Sao Paulo Biennial alternates with the Biennial in Venice, Italy, as one of the most important international exhibitions of the fine arts. Earlier in 1961, this building was selected as one of the eighteen (18) finest buildings in the United States for the year 1961 by the AlA National Honor Awards Program. Additionally, in 1960 it was honored as the most outstanding building in Southern California by the Southern California Chapter of the AlA.

This building is considered by Mr. Killingsworth as one of his most important works. Mr. Killingsworth, an internationally renowned architect, is president of an architecture firm that has been located at 3833 Long Beach Boulevard for more than thirty-five (35) years. During that

time, the firm has won forty-two (42) national, regional and local design awards and its work is known in Paris, London, Rome, Hong Kong, Singapore, India and Australia as well as across the United States.

This building exemplifies Killingsworth designs for the California Case Study House Program, an innovative design program that shaped architecture in the United States and Europe in the postwar years. It is unusual in being a commercial building, whereas the Case Study House program was for residential buildings. The Case Study Houses, commissioned by John Entenza and published in his influential magazine, Arts and Architecture, formed the cutting edge of design in America and abroad in the postwar period. Killingsworth projects for the Class Study House Program were CSH# 23, a triad of houses in La Jolla (1959-1960) and the Frank house, CSH# 25 in Naples (1962).

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and they, along with the following additional guidelines and standards as recommended by the Cultural Heritage Commission shall apply to the landmark:

Any alterations, modifications or repair of the above structure shall be done so in keeping with its historic character, and any alteration, modifications or changes shall follow the Secretary of Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings.

The following additional standards and guidelines are adopted:

1. The building shall not be changed architecturally on its exterior and all present elevations shall remain as they now exist;

2. The colors of existing exterior materials shall remain the same;

3. Landscaping, including all trees and ivy, shall remain generally as now existing. Minor changes and additions of plant materials shall not require Cultural Heritage review;

4. The existing ceiling heights of approximately seventeen feet (17') in the building's interior shall not be changed;

5. Changes or modifications to existing walls, floors and ceilings in the reception area, corridors and front office shall be compatible in color and texture with the external and internal architecture of the building;

6. All draperies will remain a simple natural color (not white) and shall hang from ceiling to floor. Draperies may hang so that they may be opened, but not in swags or curves;

7. The reflecting pool and stepping stones shall be retained;

8. The second floor interior is not included in this environmental review by the Cultural Heritage Commission.

No environmental changes shall be permitted to the exterior of the building unless a certificate of appropriateness has been applied for and approved by the Cultural Heritage Commission or by the City Planning Commission, upon appeal, authorizing such environmental changes. (Ord. C-6818 § 1, 1990)

16.52.690 The Hancock Motors Building.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Hancock Motors Building.

A. Location, description and reasons for designation. Located at 500 East Anaheim Boulevard in the City of Long Beach, this prestigious and important automobile dealership was related to the development of Anaheim Boulevard as "auto row," a significant fact in the City's economic profile and indicative of its economic growth. Strategically located on the main thoroughfare between the oil fields of Signal Hill and the refineries and port, the flourishing of important automobile dealerships on Anaheim Boulevard was highlighted with the opening of Hancock Motors, acting as distributor for the Hupmobile. The Hupmobile, itself an interesting chapter in the history of automobile engineering and merchandising, was produced between 1908 - 1940.

The automobile showroom is a lavishly decorated and perfectly intact example of Art Deco architecture. The open interior space is lit by large bays of plate glass windows and original Art Deco geometric chandeliers. On the exterior, broad ornamental bands accent the show windows and doorways and crown the top of the building. These bands contain a wealth of Art Deco ornament, with floral and geometric motifs. The corners are highlighted by stylized ram heads from which abstract ornament flows outward and downward. Although the show windows are slightly altered with wood paneling, and the corner doorway has been replaced, this building is an intact and excellent example of Art Deco architecture. Today it remains as one of the most flamboyant and original Art Deco buildings that has survived, with unusual decorative richness and an unaltered interior.

The architects, Shilling and Shilling, were important local architects well known for their achievements in the Art Deco style. They designed the Lafayette Hotel, a designated City landmark, and the Moderne remodel of City Hall after the 1933 earthquake (now demolished). They also designed the American Legion Hall (1932, demolished), and the Home Market Building at 10th Street and Daisy Avenue, another City landmark. In 1933, Cecil Shilling was president of the Long Beach Architectural Club, a professional association. The consulting architect, W. Horace Austin, was an eminent Long Beach architect with a long and distinguished career.

This was the first Art Deco building in Long Beach, heralding the advent of "modernistic" architecture. Created in 1928, it was an avant-garde building, and one of the first of its kind in the Southern California area. Every ornamental detail and component was designed to be integrated with the Art Deco style, and everything was freshly conceived. The decorative details are inventive and unusual; although drawing upon eclectic sources, they are totally original in their Alt Deco interpretation.

It is related to the development of automobile dealerships on Anaheim Boulevard, and represents a high point in the history of this business activity on a major thoroughfare. It recalls a period of history in which the City's major car dealers were clustered on Anaheim Boulevard. When it opened to great festivities in October 1928, it was hailed by related businesses as a welcome addition to the neighborhood.

B. General guidelines and standards for any changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and they, along with the following additional guidelines and standards as recommended by the Cultural Heritage Commission shall apply to the landmark:

All alterations, modifications, repairs and demolition shall require a Certificate of Appropriateness from the Cultural Heritage Commission.

The exterior and interior of the original automobile showroom shall be preserved. Original furnishings and decorations on the interior and exterior of the showroom shall not be altered or removed, unless approved by the Cultural Heritage Commission.

New construction on the site shall adhere to the referenced "Standards for Rehabilitation" of the Secretary of the Interior. (Ord. C-6844 § 1, 1991)

16.52.700 The Cheney-Delaney Residence.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Cheney-Delaney Residence.

A. Location, Description and Reasons for Designation. Located at 2642 Chestnut Avenue in the City, this high quality example of Streamline Moderne architecture exemplifies many typical features of the style, plus many fine, customized details. It is an asymmetrical single-story house, with two (2) bedrooms and a den. The forms are unified by a projecting horizontal cornice below the roofline. This horizontality is repeated in three (3) lines above the cornice, in the unified horizon-

tal window bands and with horizontal lines on panels between the windows. The exterior has curving corners at the living room and entry canopy. The corners have wrap-around windows and a curving window bay. The entry canopy is supported by a slender metal cylinder. Behind a modern screen door, the original door has a chevron design, and original period hardware. Adjacent is a round porthole window, divided into four (4) parts, made of yellow opaque glass. The kitchen window projects in a shallow bay, articulated underneath with geometric steps. The rear door is sheltered by a curved canopy. The seafoam green exterior color may be original.

The interior contains many unique design features in the Streamline style that demonstrate fine customized craftsmanship. The entry hall is defined with a curved wall and a stepped pyramid arch. The stepped pattern is carried throughout the house, from the moldings to the living room ceiling where built-in lights are located. The kitchen contains curved corners and some period hardware. The den is paneled in blond wood, and unusual wood panels over the windows with the stepped pyramid pattern contain recessed lighting. Except for the flagstone fireplace and wall moldings in the dining room, the interior appears to be totally intact and unaltered.

The house is significant architecturally, as a very fine example of Streamline Moderne architecture, popular in the 'thirties. The style represents a fascination with modernity, and utilizes forms from abstract cubist art: the cube and the cylinder (or cylinder segment). Forms are integrated into a unified whole, with windows flowing around walls and different elements united by continuous horizontal lines. The repetition of horizontal lines and curving shapes indicate an interest in "streamlining" and the imagery of speed.

Streamline Moderne architecture is relatively rare in Long Beach, compared with the prevalence of California Bungalows, Spanish Colonial Revival and other period revival styles.

B. General Guidelines and Standards for any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and they, along with the following additional guidelines and standards as recommended by the Cultural Heritage Commission shall apply to the landmark:

Any alterations, modifications or repair of the structure shall be done so in keeping with its historic architectural character, and any alteration, modifications or changes shall follow the Secretary of the Interior's Standards and Guidelines. All exterior changes, including exterior materials and color, shall require a Certificate of Appropriateness from the Cultural Heritage Commission. Structural alterations and the removal of any original historic materials or architectural fabric from the interior shall require a Certificate of Appropriateness from the Cultural Heritage Commission. (Ord. C-6921 § 1, 1991)

16.52.710 The James E. Porter Residence.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The James E. Porter Residence.

A. Location, Description and Reasons for Designation. Located at 351 Magnolia Avenue in the City, this large two-story home, prominently sited on a corner lot, is composed of varied shaped masses arranged asymmetrically. A steeply pitched gable crowning an offset cross gable roof dominates one (1) side of the facade, balanced by an open wrap-around porch with ionic column supports. Bay windows appear on the front facade, under the porch and at the north side. The foundation is faced with rounded river rocks. The lower story is sheathed with narrow clapboard siding; the upper story with shingles. The gable interior contains diamond shingles. The triangle pattern also appears on a horizontal band above the string course separating the two (2) stories. Many of the windows contain the original leaded and bevelled glass. Other windows contain contemporary stained glass made by the current owners.

The house has been meticulously restored with rebuilt foundation, new roof, new plumbing and electrical, new exterior paint and interior restoration. The building is totally intact and has maintained its original design (see historic photograph). The only loss is the leaded glass transom over the living room window. The interior, which had been converted into a boarding house, has been converted back to a family home and restored by the current owners. The rear garage and garage addition are new, but have been designed to complement and match the main house. At the south side is a small secondary structure that is original to the house, set back from the driveway.

The building is one of the oldest large-scale historic homes in the City. It was built in 1902, and has remained intact on the exterior from its date of construction.

The original owner and building of the house was James E. Porter, who migrated from Kentucky to Arizona and finally to Long Beach. His story is typical of many early settlers of the City; he first spent his summers here, and then established his home here in 1902.

His career reflects the early history of the West. Mr. Porter worked as a land surveyor in the 1870's and early 1880's, doing survey work in Sonoma County and in Cajon Pass, California. He was part of the first survey party to map Arizona, New Mexico and Utah. Later, he purchased a large ranch at Navaho Springs, Arizona, and became a sheep and cattle rancher. After establishing himself in Long Beach in 1902, he continued to build and develop homes here. The house is significantly architecturally and historically. Architecturally, it is an intact and monumental example of the Victorian Queen Anne style. Relatively few examples of this quality, integrity and grandeur remain in the City today. Historically, it is associated with a man who pioneered the settlement of the West, as a surveyor, rancher and builder.

B. General Guidelines and Standards for Any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and they, along with the following additional guidelines and standards as recommended by the Cultural Heritage Commission shall apply to the landmark:

The building's exterior shall be regulated by the provisions of the ordinance codified in this Chapter. There shall be no restrictions on the building's interior. Any alterations, modifications or repair of the building's exterior shall be consistent with its historic character. No exterior changes, including repainting, shall be permitted unless a certificate of appropriateness has been applied for and approved by the Cultural Heritage Commission. (Ord. C-6921 § 2, 1991)

16.52.720 The Meeker Building.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Meeker Building.

A. Location, Description and Reasons for Designation. Located at 650 Pine Avenue/112 East 7th Street in the City, the Meeker Building was constructed in 1924 at the eastern end of the main commercial street of Long Beach. The two-story structure occupies a prominent corner of the business district, contributing to its character and continuity. The building was designed in the Renaissance Revival style and still exhibits elements of that style, primarily on the second story. Elements of the original style still extant include decorative brick and tile work, arched openings, medallions, and a frieze with medallions. Some alterations on the corner have damaged the integrity of the building, but the structure remains a representative example of commercial architecture in downtown Long Beach from the 1920's period of development.

The building entrance at 112 E. 7th Street retains its monumental architectural character in its original condition. It is a two-story Renaissance-styled doorway, flanked by paired columns. The two-story lobby contains an open staircase and

original cage elevator. The lobby walls are decorated with cast plaster ornamental floral designs in a frieze.

The second story retains all its original interiors: mahogany woodwork, original glass and mahogany doors with transoms, original double-hung wood frame windows, high ceiling heights. The retention of all the original 1924 building fabric in the interiors is remarkable, and a special asset of the building.

The aluminum storefront sign which obscures the facade is removable; original building material exists underneath.

B. General Guidelines and Standards for Any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and they, along with the following additional guidelines and standards as recommended by the Cultural Heritage Commission shall apply to the landmark:

Original historic fabric shall be retained as much possible. Any alterations, repairs or modifications of the subject structure shall be done so in keeping with its historic character. No environmental change shall be allowed unless a certificate of appropriateness has been applied for and approved by the Cultural Heritage Commission upon appeal, authorizing such environmental change. (Ord. C-6921 § 3, 1991)

16.52.730 278 Alamitos Avenue (skating rink).

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: 278 Alamitos Avenue (skating rink).

A. Location, Description and Reasons for Designation. Located at 278 Alamitos Avenue in the City of Long Beach, the original use of this building as a roller rink was important to the recreational history of Long Beach, and served as a social center for several decades. It was a place of public assembly and recreation and is remembered fondly by many residents of the City. Its closure as a skating rink reflects changes in the recreational lifestyles of Americans, and changes in the economic profitability of that activity. Its use for modeling the Long Beach Marina was significant for the development of the Long Beach waterfront in the late 1970's.

It is an intact example of Art Deco architecture in its ZigZag phase, with stepped pilasters, chevrons, and geometric ornament. It is relatively unusual to find this style translated into masonry material. The original marquee with chevrons is still in place. The design quality of the facade makes it an excellent example of that style.

The roof is a fascinating example of historic engineering used for spanning large spaces. Called "lamella" in the construction drawings, it is a wooden arched roof uninterrupted by interior supports, pierced by skylights. The arches consist of a web of diamond-shaped wood supports surmounted by wood boards, anchored by slender horizontal metal tie-rods. This roof structure is unique in Long Beach, and the design of the open span roof represents a significant engineering innovation and was a precursor of the geodesic dome.

Its location at the crossing of two (2) major streets, Alamitos Avenue and Third Street, and the lively, vibrant design of its Art Deco facade, make it a prominent visual feature of its neighborhood. It has been a feature of the Long Beach Cityscape for more than sixty (60) years.

B. General Guidelines and Standards for Any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the Secretary of the Interior (Revised, 1983), as amended, are incorporated by reference, and they, along with the following additional guidelines and standards as recommended by the Cultural Heritage Commission shall apply to the landmark:

Any alterations, modifications or repair of the structure shall be done so in keeping with its historic architectural character, and any alteration, modifications or changes shall follow the Secretary of the Interior's standards and guidelines. All exterior changes, including exterior materials and

color, shall require a certificate of appropriateness from the Cultural Heritage Commission. Structural alterations and the removal of any original historic materials or architectural fabric from the interior shall require a certificate of appropriateness from the Cultural Heritage Commission. (Ord. C-6928 § 1, 1991)

16.52.740 The Recreation Park bandshell.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Recreation Park bandshell.

A. Location, Description and Reasons for Designation. Located in Recreation Park at 4901 East Seventh Street in the City of Long Beach, the bandshell was the location of numerous public events, reflecting many elements of the cultural, social and political history of Long Beach. It was a location of the all-state picnics, including many of the famous Iowa picnics. School performance and drama festivals took place there. Graduation exercises for Long Beach City College were held there. After the 1933 earthquake, it was used as temporary classroom space. One of Long Beach's parent cooperative nursery schools used this facility from 1952. It was also the site of political gatherings, such as an appearance by Richard Nixon during his early political career. The bandshell was also the site of the Municipal Band's regular concerts. Long Beach's Municipal Band was thought to be the only City that supported year-round band concerts from 1912 through 1940, and was a source of civic pride.

The Spanish Baroque Revival style used here appears rarely in Long Beach. This is the only public building in that style, which was popular in the early 1920's. This style was launched by the eminent architect Bertram Goodhue in buildings designed for the Panama-California Exposition of 1915 in San Diego, and became popular throughout Southern California. The rich plasterwork, the elaborate curvilinear design of the central arch, the broad border of colorful Malibu tile, the stucco walls and red tile roof are all features of this style.

The bandshell has been identified as an important historic resource by a professional architectural historian hired by the City as a consultant, who determined that the building might be potentially eligible for the National Register of Historic Places. The richly ornamented historic architectural style plus the multifaceted community historic significance of the building more than amply constitute qualifications for designation as a City landmark.

B. The Secretary of the Interior's "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" are incorporated by reference, and shall serve as standards and guidelines for future exterior changes to the building. All exterior changes, whether or not they require a building permit, shall require a certificate of appropriateness from the Cultural Heritage Commission. Any alterations, modifications or repair of the structure shall be consistent with the character-defining architectural features, and shall not adversely affect the historical materials, design or detailing. (Ord. C-6947 § 1, 1991)

16.52.750 The Coffee Pot Cafe.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Coffee Pot Cafe.

A. Location, Description and Reasons for Designation. Located at 955 East Fourth Street in the City of Long Beach, this small building exemplifies a type of architecture known as "programmatic," in which the building form is based on a common object and serves as a large-scale sign advertising the business contained within. Such novelty buildings were popular in the 'thirties, a kind of roadside vernacular architecture arising concurrently with the growing popularity of the automobile; the fantasy design was meant to be eye-catching at high speed. Other examples of this architecture are the Brown Derby Restaurant (Wilshire Boulevard, Los Angeles); I Scream ice-cream parlor in an ice-cream cone-shaped building. Such buildings flourished, particularly in

Southern California, in association with our automobile culture. Today, most of these buildings have been destroyed for new development.

The coffee pot-shaped restaurant, with octagonal sides echoing the gigantic rooftop coffee pot, is a survivor of this period and reflects cultural attitudes of that time. Another Long Beach example, now gone, was Tee Pee's Barbecue, a Belmont Shore restaurant shaped like an Indian teepee.

The unusual design of the building to resemble a coffee pot reflects a distinctive architectural style popular at a singular period of history. Programmatic architecture flourished in the 'thirties as a novelty building to attract the attention of passing motorists. These buildings were small scale commercial buildings, each one of which was distinct and individual. Later they evolved into "theme" buildings, such as the Van De Kamp windmill, in which one design became a standardized product used in many different locations.

This singular building has long been recognized by many citizens as unique to the built environment of Long Beach. It is featured in the renowned architectural guidebook, "Architecture in Los Angeles: A Complete Guide," by David Gebhard and Robert Winter, with a picture and description as a Long Beach landmark.

B. The Secretary of the Interior's "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" are incorporated by reference, and shall serve as standards and guidelines for future exterior changes to the building. All exterior changes, whether or not they require a building permit, shall require a certificate of appropriateness from the Cultural Heritage Commission. Any alterations, modifications or repair of the structure shall be consistent with the character-defining architectural features, and shall not adversely affect the historical materials, design or detailing. (Ord. C-6947 § 2, 1991)

16.52.760 The Chancellor Apartments.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Chancellor Apartments.

A. Location, Description and Reasons for Designation. Located at 1037 East First Street in the City of Long Beach, this is an excellent and impressive example of Georgian Revival architecture, a style used more commonly on single-family houses than for apartments. This style contains classical revival detailing, such as the semicircular portico with columns and entablature, dentils, dormer pedimented roofs, and entry door. The curved fanlight and Queen Anne windows in the dormers are also typical of this style. Nationally, the Colonial Revival style, of which the Georgian tradition is part, was the dominant fashion for homes in the first half of the 20th century. In Southern California it appears less commonly, superseded by locally popular styles such as the Craftsman and the Spanish Colonial Revival. The Chancellor Apartments mix in some local traditions, using a terra cotta tile roof from the Spanish Colonial Revival style.

B. The Secretary of the Interior's "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" are incorporated by reference, and shall serve as standards and guidelines for future exterior changes to the building. All exterior changes, whether or not they require a building permit, shall require a certificate of appropriateness from the Cultural Heritage Commission. Any alterations, modifications or repair of the structure shall be consistent with the character-defining architectural features, and shall not adversely affect the historical materials, design or detailing. (Ord. C-6947 § 3, 1991)

16.52.770 The Kress Building.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Kress Building.

A. Location, Description and Reasons for Designation. Located at 449 Pine Avenue in the City of Long Beach, the Kress Building was num-

ber 152 in the total of nationwide chain stores founded by Samuel H. Kress (1863-1955). Constructed in 1923 on Long Beach's premier retail street, Pine Avenue, the store prospered. In 1928—29, a three-story addition was built on the south to double the store space and increase lunch counter services. Its opening was announced in the Press-Telegram on November 24, 1929. Kress' competitors, Woolworth and J.J. Newberry, also came to Pine Avenue, Woolworth in 1916 and J.J. Newberry in 1950. Unlike its competitors, the Kress store included a "high-rise" (seven story) office tower, whose profile was prominent on low-rise Pine Avenue.

The founder of the Kress variety stores was renowned not only for his business success, but also for his art collection, which now is housed in the National Gallery of Art in Washington, D.C. After his death in 1955, the chain was purchased by Genesco in 1963, which company closed one-third (1/3) of the Kress stores in 1974. The Kress chain was liquidated in 1981.

The Kress Building, in its rise and fall, exemplifies the history of Pine Avenue as downtown's premier retail shopping street. Although American Avenue (now Long Beach Boulevard) was intended to be the City's "Main Street," in fact Pine Avenue became the location of choice for the City's premier businesses and stores. The City's first hotel, the Bay View, was built on Pine between 1st and 2nd Streets in the 1880's. The first residence in the City (1882) was located at 317 Pine. W.W. Lowe opened a small store at Ocean and Pine which became the City's first official post office in 1885. The City's first school was built at Pine and 6th. The Pine Avenue Pier opened in 1893 and heightened the increasing prominence of that street.

The City's banks chose a Pine Avenue location also, beginning with the Bank of Long Beach on the northwest corner of Ocean and Pine; it was later taken over by Security First National Bank. Later also came the Farmers and Merchants Bank (which included an office tower like the Kress Building) at 4th and Pine, constructed in 1923 just before the Kress Building; the Long Beach National Bank at 7th and Pine (1924) and Security Pacific National Bank at 1st and Pine (1925). The City's major department stores were also on Pine starting with the Mercantile Company in 1904, which later became Buffums in 1912. Its three-story building at Pine and Broadway was enlarged to six (6) stories in 1926. Other retail stores on Pine were Famous Department Store (1929), Marti's (1929) which became Walker's (1933), Wise, and Penneys.

The decline in the Kress Company fortunes coincided with the decline in downtown retail activity on Pine Avenue. The rise of suburban shopping centers, the dwindling of the aerospace industry, the removal of the U.S. Navy, were all factors in the fall of retail sales on Pine Avenue. The formation of the Downtown Redevelopment Project by the Long Beach Redevelopment Agency has aimed to support the economic revitalization of downtown and the rebirth of Pine Avenue as a pedestrian-oriented retail corridor.

Tenants in the office building represented a cross-section of commercial activity on Pine Avenue during its heyday: physicians, dentists, attorneys, insurance companies, accountants, and other professional services. The most prominent among them was probably the photographer Lawrence Inman (1890-l979), whose sign appeared prominently displayed on the penthouse wall where he had his office. He photographed local celebrations, events and many local scenes. His photographs of the 1933 earthquake are today important documents of that trauma. He sold many of his prints to local newspapers and other publications, counting both national companies such as Ford Motor Company and International Harvester and local oil companies on Signal Hill among his clients. He served as President of the Photographers Association of America, where he founded that group's Commercial Division. Many of his negatives are now in the collection of the Historical Society of Long Beach.

The architect, Thomas Franklin Power, was a prominent and prolific Los Angeles architect who designed office buildings, many Roman Catholic churches, schools, houses and apartments. He was

born in Boston in 1874; the year of his death is not known. His most important commission was the planning, design and construction of the Playa del Rey campus of Loyola Marymount University, which began in 1927. Aside from the Kress Building, the only other work in Long Beach of his design is St. Bartholomew's Catholic Church at 5143 Livingston Drive, constructed in 1938.

The building has been severely stripped following a failed attempt at reuse and restoration, so that much of its architectural character has been lost. However, some original fragments and "clues" plus the original architectural plans remain, so that its architectural character can be identified.

The architectural style was Renaissance Revival. The lower two stones constituted the store portion of the building, separated from the upper five (5) office stories by a frieze. The frieze originally contained swag relief ornamentation, of which some fragments and "ghosts" survive. The 5th street store elevation was broken into bays, with two-story pilasters on high bases and ornate capitals. The ground floor contained plate glass show windows. The mezzanine level contained unusually narrow windows; the second floor windows were rectangular. The exterior was cement stucco scored to resemble terra-cotta. The cornice frieze contained ornate plaster decoration, some of which still remains today. The building was crowned with a decorative cornice.

B. The Secretary of the Interior's "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" herewith are incorporated by reference, and adopted for this structure.

The restoration and reconstruction of the building shall adhere to the original materials and design. Any deviations from the original materials and design must be compatible with and replicate the original historic building fabric in appearance, texture, color and visual quality. Substitute materials may be permitted if they reproduce the design, color, texture and visual appearance of the original. All exterior construction shall require a certificate of appropriateness from the Cultural Heritage Commission. (Ord. C-7074 § 1, 1993)

16.52.780 The Gaytonia Apartment Building.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Gaytonia Apartment Building.

A. Location, Description and Reasons for Designation. Located at 212 Quincy Avenue in the City of Long Beach, the "Gaytonia" is a twenty-seven (27) unit, "U" shape plan apartment building prominently sited at the corner of Quincy and Shaw Streets in Belmont Heights, designed in Norman Revival/English Tudor style.

The "Gaytonia" consists of three (3) stories of apartments along Quincy Street, with the sloping grade to the rear providing space for a thirty-six (36) car semi-subterranean garage. Two (2) large roof patios, accessible from inside, are visible from the rear.

The stucco exterior contains pseudo-stone quoins, and pseudo-halftimber at the third story. The overhanging upper story is set on corbels, with a varied or broken eave line above the pointed windows. A steeply pitched hip roof, of simulated slate composition, tops the building. The symmetrical design is broken by an asymmetrical corner turret with a conical roof, and the rooftop tower upon which there is a large metal scaffold supporting a neon sign, "Gaytonia," in Gothic script. The sign, original to the building, no longer illuminates. Multi-paned metal casement windows of various sizes are used. An oriel window, resting on corbels and with a battlement trim on top, occupies the central recessed bay above the main entrance, while two (2) smaller turrets with metal conical roofs crown the doorway. The door of the main entrance contains a stained glass window, and the entranceway is also flanked on either side by stained glass windows.

Quoins, corbels, battlements, coats of arms and chimney pots add charming decorative elements to the structure. Metal finials on the tower and roof, and a weather vane crowning the main turret have been removed. Otherwise, the "Gaytonia" remains intact, with only minor cosmetic alterations. A fire ladder was added later, in 1957.

The lobby of the "Gaytonia," characterized by wood panelled floors, contains an inglenook and fireplace with Batchelder tile infill. Three (3) pointed arches lead to the hallway, the transition marked by three (3) cross vaults. The hallway is punctuated with arches resting on corbels. Decorative elements include corbels at the lobby ceiling level, and ornate plaster work under crown moldings throughout the hallway. Light sconces shaped like heraldic shields (in the form of a coat of arms or crest) in the lobby, and paintings of a knight in armor and two (2) crests along the hallway wall, add a medieval decorative touch to the interior. Each apartment door is designed with a pointed arch relief and ornate metal door knockers in the coat-of-arms motif. The original wood panelled elevator is still used.

The "Gaytonia" was built in 1930 by owner-contractor, George T. Gayton, who retained ownership until 1956. Gayton was a contractor of buildings along the west coast for several years during the early part of this century. He also built the seven hundred and fifty (750) seat Belmont Theatre in Belmont Shore in 1929, the first in Long Beach to be built for talking pictures.

Reginald Freemont Inwood was the architect for both the "Gaytonia" and the Belmont Theatre. Inwood had an office in Long Beach, although he designed structures throughout the Los Angeles area. His other projects included a Methodist Church in El Segundo (1927), another Methodist Church in Lynwood (1928), and a Baptist Church in Colton (1930).

The "Gaytonia" was constructed at a cost of one hundred thousand dollars ($100,000.00), a significant amount at the time. The "Gaytonia" was originally an upscale residential building which catered to Naval officers stationed in Long Beach. Although the "Gaytonia" was always an apartment building, it was originally managed like a hotel. Maid and valet service was provided, and each apartment building was furnished, including the provision of linens and dishes.

The large scale, including the height and bulk, of the "Gaytonia" and the prominent position it occupies, set on a hill, make the "Gaytonia" a dominant element in the Belmont Heights neighborhood. The conspicuous "Gaytonia" sign is visible from several vantage points in the Belmont Shore area, identifying the building to passersby.

Because the building has been well-preserved and maintained, it is an excellent example of the Norman Revival style. The structure is unique to the Long Beach area in its style, character and picturesque architectural details. Other Long Beach buildings, such as the Pacific Coast Club (1926) in the Norman style, and the Villa Riviera (1929) in the Chateauesque style, while similar to the "Gaytonia" in some respects, (such as the use of hip roofs, turrets, conical caps and corbels), differ from the building in their larger scale and in their more formal architectural treatments and character. The "Gaytonia" is characterized by a more "rustic" appearance, with its pseudo-halftimber style and pointed arches. The "Gaytonia" also exhibits richer detailing than other Chateauesque buildings of similar scale.

B. The Secretary of the Interior's "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" are incorporated by reference, and shall serve as standards and guidelines for future exterior changes to the building. All exterior changes, whether or not they require a building permit, shall require a certificate of appropriateness from the Cultural Heritage Commission. Any alterations, modifications or repair of the structure shall be consistent with the character-defining architectural features, and shall not adversely affect the historical materials, design or detailing. (Ord. C-6988 § 1, 1992)

16.52.790 The Masonic Hall Commercial Building.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Masonic Hall Commercial Building.

A. Location, Description and Reasons for Designation. Located at 5351-55 Long Beach Boulevard in the City of Long Beach, the former Masonic Hall Commercial Building is one of the

oldest and most prominent commercial buildings in North Long Beach, distinguished by its architecture and by its use. Constructed in 1928 by architectural designer, F.D. Davis, it is a fine example of Renaissance Revival vernacular design. The exterior is clad in gold-hued brick with terra-cotta Renaissance-styled terra-cotta detailing around the windows, cornice, parapet and stringcourse between the floors. A round terra-cotta medallion with the Masonic logo accents the corner, and indicates the use of the upper floor for a Masonic Hall. The ground floor accommodates retail tenants. The building is typical of period revival commercial buildings of brick with lighter terra-cotta accents built in the 'twenties; this example stands out in isolation on the north portion of Long Beach Boulevard. Its presence indicates the first emergence of commercial development in that neighborhood. Its use as the meeting site of a fraternal order, the Masons, gives it additional social and cultural significance.

The building's architecture is a typical example of Renaissance Revival design in a small-scale vernacular commercial building. Clad in masonry materials, brick and terra-cotta, the construction detailing is finely done. The ornamental motifs of the parapets and window surrounds derive from the Renaissance style. The triple windows with transoms are typical configurations for commercial construction of that period. The ground floor storefronts have been altered, and signs hide the original transom zone.

Little is known about the original designer, F.D. Davis of Lynwood. However, following the '33 earthquake, the repair and restoration work was done by W. Horace Austin, noted Long Beach architect. The construction drawings specify that the building is to be repaired and restored to its original condition.

It is an established and familiar visual feature of north Long Beach Boulevard, and provides a visual link back in time to the first period that this neighborhood was developed. It is distinguished by its unusual shape, with a corner oriented on the diagonal, which is accented by a Masonic emblem medallion.

B. The Secretary of the Interior's "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" are incorporated by reference, and shall serve as standards and guidelines for future exterior changes to the building. All exterior changes, whether or not they require a building permit, shall require a certificate of appropriateness from the Cultural Heritage Commission. Any alterations, modifications or repair of the structure shall be consistent with the character-defining architectural features, and shall not adversely affect the historical materials, design or detailing. (Ord. C-6988 § 2, 1992)

16.52.800 The Art Theater Building.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Art Theater Building.

A. Location, Description and Reasons for Designation. Located at 2025 East Fourth Street in the City of Long Beach, this building is the last remaining neighborhood movie theater left in Long Beach. Its design and construction reflect three (3) successive eras of development, beginning with the silent film era. The first theater on this site was built in 1925, and contained a theater organ. The plans show a "period revival" style, with orientalizing touches reminiscent of the Chinese Theater in Hollywood. This theater was flanked by two (2) separate storefronts. The storefront on the east side of the building survives from this period, with its original transom windows. The Streamline Moderne design was the work of Schilling and Schilling in 1933, done after the '33 earthquake. From this period date the Art Deco stylistic elements: the concrete stepped piers, the tiered layers, the central curved mass with horizontal accents and a vertical stepped element supporting the original Art Deco sign, the ticket booth, the black ceramic title, the sidewalk terrazzo. The design is an interesting combination of Zigzag Moderne and Streamline Moderne, with the fluted stepped vertical elements exemplifying Zigzag design, and the horizontal stringcourses wrapped around curv-

ing corners from the Streamline style. A major renovation was done in 1947 by Hugh Gibbs, at which time the marquee was remodeled, the glass block wall inserted, and new poster boxes built. The building retains its integrity from these successive phases of construction.

B. The Secretary of the Interior's "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" are incorporated by reference, and shall serve as standards and guidelines for future exterior changes to the building. All exterior changes, whether or not they require a building permit, shall require a certificate of appropriateness from the Cultural Heritage Commission. Any exterior alterations, modifications or repair of the structure shall be consistent with the character-defining architectural features, and shall not adversely affect the historical materials, design or detailing. (Ord. C-6999 § 1, 1992)

16.52.810 The Ambassador Apartment Building.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Ambassador Apartment Building.

A. Location, Description and Reasons for Designation. Located at 35 Alboni Place, in the City of Long Beach, the Ambassador Apartment Building is on a short block between Ocean Avenue and First Street. The Ambassador Apartments is an L-shaped masonry building, constructed in 1925 by eminent architect W. Horace Austin. The projecting wing of the "L' is four (4) stories and the rear wing is five (5) stories, and both sections plus the walled courtyard in the void of the "L" are set over a basement. Mediterranean detailing enlivens the rather straightforward design. The facade has been smoothly stuccoed over a pseudo rusticated base. A hipped tile roof crowns the structure. Symmetrically organized, the street facade of the projecting the wing consists of three (3) bays occupied by paneled and bracketed balconies in the center and paired double-hung sash in the sides. The entry is located in the north bay of the recessed wing and is dignified by a rusticated surround and a keystone. An "A" on the keystone and gold lettering in the transom over the double door identify the building. The Ambassador Apartments were constructed in 1925 according to the Sanborn maps. They were characterized by fireproof construction, reinforced concrete floors and reinforced brick curtain walls. A typical example of a medium-sized, Southern California urban apartment building of the 1920s, the Ambassador is situated close to the amenities of downtown and the allure of the shoreline. It was built during a period of tremendous growth in Long Beach, when several apartments and hotels, some offering individual ownership of units, were erected. The majority of these buildings shared a similar downtown location and offered a genteel lifestyle to their residents. Although not architecturally outstanding, the Ambassador is an intact representative of this important trend in Long Beach's development.

B. The Secretary of the Interior's "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" are incorporated by reference, and shall serve as standards and guidelines for future exterior changes to the building. All exterior changes, whether or not they require a building permit, shall require a certificate of appropriateness from the Cultural Heritage Commission. Any alterations, modifications or repair of the structure shall be consistent with the character-defining architectural features, and shall not adversely affect the historical materials, design or detailing. (Ord. C-7052 § 1, 1992)

16.52.830 The Merrill Building.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Merrill Building.

A. Location, Description and Reasons for Designation. Located at 810-812 Long Beach Boulevard in the City of Long Beach, the Art Deco styling of this commercial building is intact. It is two (2) stories, stucco-clad, and possesses a sym-

metrical facade. A central entry way is defined by piers, which are fluted in alternating wide and narrow widths and rise about three-quarters up the building. Decorative panels in low relief, accented by a chevron surmount the entry, which leads to the upper story. To either side, storefronts are topped by a patterned frieze. Reeded piers marked the ends of the building. The plane containing the second story windows is slightly recessed and punctuated by reeded panels and mullions. Each of the three (3) windows in the side and two (2) in the central bay are topped by patterned panels. This decorative band contrasts with the smooth surface of the frieze area into which the name "Merrill" is incised. The Merrill Block was probably built around 1921, replacing a smaller improvement on the property assessed to Isabel E. Lyman. Merrill Rowe, whose business was real estate, became the assessed owner in 1922. The Rowes lived next door to Mrs. Lyman, a widow, on East 8th Street. By 1922 the City Directory listed the occupants of the Merrill Building as the Sasnak Tire Company (distributors of Lancaster Tires) and the La Belle Apartments.

Following the 1933 earthquake, six thousand dollars ($6,000.00) worth of alterations were made to the building, whose appearance probably dates to that year. Art Deco emerged in the 1920's as a style that looked forward to the future rather than to history for its ornamentation. It was an expression of the eminence of technology and the machine age.

The building received the name "Merrill" following the 1933 alterations, done by the firm of Schilling & Schilling. The upstairs units were then called the Merrill Apartments. The ground floor has been used for various retail activities: in 1935, K.C. Welch butcher's equipment; in 1939, E.A. Glass restaurant. City Directories for 1951-52 show the Keller Paint Company downtstairs and the Long Beach Nurses Institute, a school, upstairs. Later (1959) the units again became apartment.

The building is significant as an example of the Art Deco work of Schilling & Schilling. The richness of the ornament recalls the Hancock Motors Building (500 E. Anaheim). Piers and fluted pilasters are flattened in a "modernistic" mode. The building is intact underneath the current obtrusive plastic signage.

B. The Secretary of the Interior's "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" are incorporated by reference, and shall serve as standards and guidelines for future exterior changes to the building. All exterior changes whether or not they require a building permit, shall require a certificate of appropriateness from the Cultural Heritage Commission. Any exterior alterations, modifications or repair of the structure shall be consistent with the character-defining architectural features, and shall not adversely affect the historical materials, design or detailing. (Ord. C-7075 § 1, 1993)

16.52.840 The Flossie Lewis House.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Flossie Lewis House.

A. Location, Description and Reasons for Designation. Located at 1112 Locust Avenue in the City of Long Beach, this single-family, two-story Victorian house appears virtually unaltered from its original date of construction in 1905. Its most distinctive visual feature is a large cross-bellcast-gambrel roof, with curved stickwork on the gable return. Inside the gambrel are dog-eared shingles. The porch is recessed at the north end, with a pair of Ionic columns on a pedestal support. The ground floor is clad with narrow clapboard siding and has a three-part bay window. Window and door surrounds are surmounted with a cornice. Five (5) cement stairs lead up to the entry, between low rough-cut stonework. There is a small one-story addition on the side with a shed roof. The house is in good condition. Constructed in 1905, this is the oldest remaining house in its neighborhood, and part of the original residential development of Long Beach. It is architecturally unique among Long Beach Victorians for its complex roof forms. There are not many Victorians left in Long Beach; this is one of the most outstanding examples.

The house represents an era when large-scale Victorian houses were an indicator of prosperity among the middle-class, and was built during a time of rapid growth and expansion for the young City. Today, now that many houses from this era have been lost, it marks an important stage in the development of Long Beach.

Flossie Lewis established the first program in Long Beach for recovering alcoholics in 1948. She was widely respected for her generous social contributions. She was an important community leader, considered "the mother of A.A." in Long Beach. Her name became associated with this structure in 1985.

This structure is an outstanding example of Victorian architecture, and is intact on the exterior. Its cross-bellcast gambrel roof form is unusually complex. The corner porch, bay windows, dog-eared shingles and decorative columns are typical features of the style.

B. The Secretary of the Interior's "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" are incorporated by reference, and shall serve as standards and guidelines for future exterior changes to the building. All exterior changes, whether or not they require a building permit require a certificate of appropriateness from the Cultural Heritage Commission. Any exterior alterations, modifications or repair of the structure shall be consistent with the character-defining architectural features, and shall not adversely affect the historical materials, design or detailing. (Ord. C-7161 § 1, 1993)

16.52.860 The Pressburg Residence.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following buildings as historical landmarks in the City: The Pressburg Residence, 167 South Street (Assessor's Parcel No. 7125030017).

A. Specific Criteria. This house recalls the rural agricultural community that was its environment when it was built around 1905. This area then consisted of farms and was known as the California Cooperative Colony Tract. South Street was named for its southern boundary. Dairy Avenue was named after the old Bixby Dairy, later called the Long Beach Dairy, situated on what became 49 Ellis Street nearby. Subdivision into town lots began in 1922 along Long Beach Boulevard, which was not paved until 1927-28. North Long Beach was a separate City, called Virginia City, named after the Virginia Country Club. It was annexed to Long Beach by popular referendum in January, 1924. This house is located on the western City boundary that existed in the twenties. Records for this particular house are incomplete, for it was unincorporated land when it was constructed. It may have been part of the original Bixby farm and dairy, or it may have been moved onto its lot in 1930. However, this Victorian farmhouse is evocative of the area's rural beginnings.

This house is an excellent example of Victorian architecture, with some idiosyncratic features. The steep gable roof, the large porch, the rich exterior textures of narrow clapboard siding and variegated shingles, are hallmarks of this style. The three-part second story window with a pointed gable, the use of shingles on the porch, and the use of diamondpane windows are all unusual features but are consistent with the rich visual variety of the Victorian era.

It is one of the oldest homes in North Long Beach, and stands out from its neighbors in scale and architectural type. It is the only Victorian in the area. Its appearance as a rural farmhouse of the early 1900s amongst houses of later periods makes it an important historical artifact, recalling the California Cooperative Colony Tract of that early era.

This two and one-half-story late Victorian house stands out for its scale, its noteworthy architectural features, and its integrity. The cross gable roof is steeply pitched, and ends in gable returns. Within the gable are windows and richly ornate shingles: fishscale shingles alternate with diamond-pattern shingles, separated by square-cut shingles aligned in horizontal bands. The attic is indicated on the exterior by a projection cantilevered out from the vertical walls. The first story is separated by a plain frieze, below which the exterior cladding

is narrow clapboards. A covered porch placed to one side is roofed in a low pitched closed gable forming a pediment. The front of the porch contains a wide arch spanning the entry steps; the sides contain two (2) semi-circular arches. The porch exterior contains both narrow clapboards and fishscale shingles, separated by a narrow molding strip at the springing of the arch. The entry door is original, oak with a large oval glass. The windows are unusual features on this structure. The second floor facade contains a modified Palladian window, with the central portion shaped in a gable point rather than an arch. Inside the frame, paired double-hung windows are separated by a fixed pane narrow window with diamond-shaped muntins. The picture window on the first floor contains a wide double-hung window with two (2) fixed pane side lights, also with diamond muntins. Other windows are double-hung wood sash, the frame capped with a lintel. There is a bay window on the east-facing side. The second story windows on this wall contain the only alteration on the building: aluminum sliders. There is a wooden picket fence of indeterminate age. The condition is good.

B. The Secretary of the Interior's "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" are incorporated by reference, and shall serve as standards and guidelines for future exterior changes to the building. All exterior changes, whether or not they require a building permit, shall require a certificate of appropriateness from the Cultural Heritage Commission. Any exterior alterations, modifications or repair of the structure shall be consistent with the character-defining architectural features, and shall not adversely affect the historical materials, design or detailing. (Ord. C-7192 § 1, 1994)

16.52.870 The El Cordova/Rose Towers.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as a historical landmark in the City: The El Cordova/Rose Towers (Assessor's Parcel No. 7275013076-95).

A. Specific Criteria. This fine example of Spanish Colonial Revival courtyard housing consists of twenty (20) units of varied size and design, arranged as two (2) separate wings facing a landscaped central corridor. A concrete meandering path traverses the courtyard, culminating in a tiled fountain set in a wall supporting a raised terrace in the rear. Twin stairs flanking the fountain lead up to this level. Twin iron lanterns are set on two (2) posts.

Although the building elements are symmetrical, particular motifs and details are varied. The design features exterior stairways, exterior balconies of wood and wrought iron, cantilevered second stories with plump embellished corbels, recessed entryways, pointed and parabolic arches, and decorative multi-color tile on stairs and window areas. Wood casement windows are deeply inset. The original tile roof is intact, but the exterior stucco has been redone in a coarse texture. The original hand-troweled surface finish is visible inside several entryways. An elaborate custom-crafted wrought iron signpost at the courtyard entry way contains a climbing rose vine.

The building and landscaped courtyard are in excellent condition. Except for the exterior finish, there have been no alterations. The style of this complex, Spanish Colonial Revival, is typical for its period of construction (1928). However, the richness and variety of design motifs make this an outstanding example of that style. It is also significant as an example of courtyard housing, a housing type popular in the Twenties and Thirties for multi-family housing. Courtyard housing clustered the dwelling units around a landscaped open space area that was open to the street, providing a common and tranquil outdoor space for residents. The exterior walls framing the landscaped courtyard resemble an outdoor stage set for a picturesque village. Designed after models in Southern Spain where orientation around a central patio or courtyard was typical, they were often given romantic Spanish names. The original name of this building was El Cordova. This period also saw a big construction boom in apartment building in Long Beach. The builder and architect for this project contributed substantially to that construction boom.

The Spanish Colonial Revival architecture is richly developed in this example. The arrangement of twenty (20) units around a central landscaped courtyard has generated a great variety of Spanish Revival motifs: arches in round, pointed and Moorish shapes, recessed casement windows, French doors, wood balconies with turned posts, wrought iron balconies, decorative corbelling, multi-colored tile accents, exterior porches and stairs, and carved wooden doors. The walls are stucco and the terra cotta roof tile is stacked in layers, visually supported by extended wood rafters and wrought iron scroll brackets, A courtyard fountain has Spanish/Moorish tile and a statuette set into a niche. The fountain is set back into the rear of the courtyard and is framed by stairs which lead to an elevated patio. The courtyard and architecture are treated as a unified whole. The variety of levels, massing and architectural detailing evokes a romantic Spanish or Mediterranean village.

George Riddle, the architect, and Monarch Construction, the contractor, were responsible for building many apartments in Long Beach in the late Twenties. They built other Spanish Colonial Revival courtyard apartments, and other types of housing. The high quality of their designs and the use of this housing type has significantly influenced the streetscape of Long Beach, particularly in this neighborhood.

The neighborhood in which the El Cordova is located contains other examples of circa 1928 courtyard housing, creating a unified architectural theme. Other similar examples of the collaboration of George Riddle and Monarch Construction may be found at 1906 East First Street (The Barcelona); 2055 East Third Street (Casa Del Patio); 2075 East Third Street (Alvarado); 2074 East Third Street (Casa Nido).

The picturesque charm of the El Cordova/ Rose Towers has enhanced its neighborhood for almost seventy (70) years. The openness of the design, with the courtyard opening directly to the street, and the spaciousness of the courtyard, are visually distinctive features. The unity between architecture and landscaping also distinguish this building.

B. The Secretary of the Interior's "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" are incorporated by reference, and shall serve as standards and guidelines for future exterior changes to the building. All exterior changes, whether or not they require a building permit, shall require a Certificate of Appropriateness from the Cultural Heritage Commission. Any exterior alterations, modifications or repair of the structure shall be consistent with the character-defining architectural features, and shall not adversely affect the historical materials, design or detailing. (Ord. C-7273 § 1, 1994)

16.52.890 The Bank of Belmont Shore.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following buildings as historical landmarks in the City: the Bank of Belmont Shore, 5354 East Second Street (Assessor's Parcel No. 7245002001).

A. Specific Criteria. This building is one of the few early commercial structures on Second Street which has retained its original architectural character, and for which the succession of uses reflects a dynamic economic environment. Its Spanish Colonial Revival style harmonized with the predominant architectural style of the surrounding residential neighborhood. Originally constructed in 1929 as a restaurant for Mr. C.E. Patty, the architect/engineer was Ray A. Sites of Long Beach. Two (2) other restaurants successively occupied this building until a major remodeling by Francis H. Gentry in 1950 was done for the Bank of Belmont Shore. The building as it is today is largely the product of this remodeling. Other bank uses followed: Coast Bank, and the Bank of San Diego, which closed in 1994.

Francis H. Gentry, who designed the 1950 remodel for the Bank of Belmont Shore, made many important contributions to the City of Long Beach as a civil and structural engineer and as a civic leader. He partnered with Parker O. Wright on the design of the Scottish Rite and York Rite Masonic Temples (1926, 1927), both of which are designated historical landmarks. He served on the

City Council as Mayor from 1939 to 1942. He also served on the Long Beach Civil Service Commission and County Sanitation District Boards; as food administrator 1943-45; as chairman of the Mayor's Food Conservation Committee 1947-48; and has been active in the affairs of the Long Beach hotel and restaurant industry. In 1943 he was commissioned as a Major, U.S. Army Reserve. He was a Director of the Convention and Visitors Bureau and president of the Board of Trustees of the Second Presbyterian Church. He was a member of the Chamber of Commerce, Masons, Elks, and Native Sons of the Golden West.

The building is also associated with Richard Loynes, Jr., who was listed as owner in 1938. Loynes was a world-famous speed boat racer and champion. From 1923 to 1933 he entered nearly every speedboat regatta in the Country, becoming national champion three (3) times, world champion twice, and held sixteen (16) world records. In 1939, he skippered the yacht "Contender" from San Francisco to Honolulu to win the Golden Gate International Exposition trophy, and established another "first" by continuous radio broadcasts coast-to-coast from the yacht. He was twice president of the Long Beach Chamber of Commerce and chaired the City's first Marina Committee in 1956, the year of his death at age fifty-five (55). He was a past president of the State Shoreline Planning Association, a member of the Los Angeles County Regional Planning Commission and the Southern California Marine Radio Council.

It is a typical example of Spanish Colonial Revival architecture, although it has been altered by later remodeling. As such, it exemplifies a style at the height of its popularity when it was constructed in 1929. Typical architectural features are the stucco walls, red tile roof, use of arched windows, and corner tower.

Its design relates to the predominant architectural character of the residential neighborhood of Belmont Shore, Spanish Colonial Revival. It is one of the few commercial buildings on Second Street to retain its original architectural style.

It represents an established and familiar visual feature of a neighborhood or community due to its unique location or specific distinguishing characteristics.

Located at the southeast corner of Santa Ana and Second Street, this Spanish Colonial Revival commercial building, with its corner tower and red tile roof, has been a distinguishing landmark of its neighborhood for sixty-five (65) years. The present design of the building has been established for forty-four (44) years, with the rectangular corner tower and its scroll buttresses. Although remodeled for a succession of different businesses over the years, it has maintained a continuous presence amidst much demolition and new construction along Second Street.

The building was constructed in 1929 as Patty's Restaurant. Its Spanish Colonial architecture harmonized with adjacent residential development during the first phase of building Belmont Shore. It was occupied by two (2) other restaurants until 1950, when a major remodeling was done by Francis H. Gentry for the Bank of Belmont Shore. The building today looks largely as it did after Gentry's remodeling, although some additional modifications were made in 1986.

This Spanish Colonial Revival commercial building consists of a single large rectangular hall with a corner tower; there is a covered porte cochere on the east side. Large arched windows face Second Street, with subdivided and radiating muntins. There are smaller square window openings on the side facade; a small balconet with wrought iron railing is on the second story on the side facade. The roof is red terra cotta tile; the walls are stucco. The side facade has been altered with rectangular relief strips framing the windows. The tower has a hipped roof and small arched windows, with curved brackets supporting a boxed cornice. The interior has been totally modernized; no historic fabric remains.

This building is one of the few remaining structures on a busy commercial street to retain its original architectural character. Its style, Spanish Colonial Revival, references the adjacent residential neighborhood of Belmont Shore, developed

primarily in the Twenties. The building has had a succession of uses, and remodeling, reflecting the dynamic commercial environment of Second Street. It was constructed originally as a restaurant for Mr. C. E. Patty. Construction plans are dated 1929, but the City Directory listing doesn't appear until 1933; the Depression affected the opening of the business. By 1935, Patty's Restaurant was gone.

The building has had a fascinating succession of uses, with construction drawings dated 1929 for Mr. C. E. Patty's Restaurant prepared by Ray A. Sites of Long Beach. City Directories, however, first list this restaurant in 1933, but by 1935, the building was vacant. The next restaurant to occupy this space belonged to Louis Gersten, who lived with his wife Anna at 40 La Verne, a few blocks away. This business survived until 1945, when it became Irwin Schuman's restaurant; construction drawings show that an addition and alterations were done at this time. The 1948 Directory lists Jack Laskey's restaurant.

B. The Secretary of the Interior's "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" are incorporated by reference, and shall serve as standards and guidelines for future changes to the building. All changes, whether or not they require a building permit, shall require a Certificate of Appropriateness from the Cultural Heritage Commission. Any alterations, modifications or repair of the structure shall maintain and be consistent with the character-defining architectural features, and shall not adversely affect the historical materials, design or detailing. (Ord. C-7272 § 1, 1994)

16.52.900 Castle Croydon.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, City Council designates the following building as a historical landmark in the City: Castle Croydon, 3000 East Seventh Street (Assessor's Parcel No. 7258030001).

A. Specific Criteria. The structure is a mixed commercial and apartment structure at 3000 East Seventh Street. It is attached to a Craftsman bungalow, which has been modified to blend into the two-story commercial/apartment structure constructed subsequently. This latter structure has unique and novel architectural features depicting picturesque "castle" theme. There are several rounded turrets, crenelations, decorative roundels, a projecting chimney resting on corbels, scalloped archways, rounded archways, pierced decorative openwork and a Moorish horseshoe arch. Medieval Revival and Spanish Colonial Revival motifs are mixed. The exterior is stucco. Windows are metal casement with a separate subdivided transom. The corner entry to the ground floor commercial space is recessed at the corner, accessed through double doors, under a scalloped arch. A small-paned transom window is placed above the door. The ground floor storefronts have wood frames and transoms, and are original. A stucco wall incised to simulate stone connects the commercial structure to the Craftsman bungalow along Orizaba Street, and the bungalow has been stuccoed to blend. A concave stovepipe shape over the entry door to the Craftsman cottage echoes the fantasy theme.

The Castle exemplifies typical patterns of land use and development for Long Beach during the 1920s. The two-story mixed-use structure was built in 1929 on Seventh Street as an addition to an older bungalow (1912) behind it on Orizaba Street. These two (2) phases illustrate the transition from residential to commercial along Long Beach's major corridors. With ground floor retail shops and apartments above, the 1929 building was typical of mixed-use development of that era. The charming thematic architectural design was intended as a marketing tool of its period, attracting the eye of the motorist driving on Seventh Street. The use of medieval revival thematic design is unusual for a commercial structure.

Period revivals were very popular in the 1920s as were exotic revivals and thematic buildings. Medieval Revival, Moorish Revival, Egyptian Revival, even "Hansel and Gretel" houses, flourished. Medieval Revival carried out with many embellishments characterizes this building. A few of the details derive from Spanish Colonial Revival designs, such as the use of red tile on the

service tower, the wrought iron gate and the pierced grillework. The older bungalow at the rear contains typical Craftsman bungalow features, with unique convex hood over the doorway that ties in with the fantasy theme of the larger building. A stucco wall scored to simulate irregular cut stones links the Castle and the bungalow, consistent with the thematic architecture.

Located on the corner of Seventh Street and Orizaba Street, this architectural fantasy is a unique and visually prominent feature of an otherwise bland, commercial corridor. The Medieval Revival motifs and architectural richness of this building make it stand out as a community and City landmark.

This structure is significant also as an example of two (2) phases in development: from residential to commercial. As the City's main transit corridors changed from residential to commercial uses, houses with commercial frontages along the street indicated this transition. The development of the Castle as an appendage to an older pre-existing bungalow exemplifies this transition along Seventh Street, and indicates the rapid pace of urban development in Long Beach in 1929.

B. The Secretary of the Interior's "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" are incorporated by reference, and shall serve as standards and guidelines for future changes to the building. All changes, whether or not they require a building permit, shall require a Certificate of Appropriateness from the Cultural Heritage Commission. Any alterations, modifications or repair of the structure shall maintain and be consistent with the character-defining architectural features, and shall not adversely affect the historical materials, design or detailing. (Ord. C-7278 § 1, 1994)

16.52.910 The Ernest and Lillian McBride Home.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as a historical landmark in the City: Ernest and Lillian McBride Home, 1461 Lemon Avenue (Assessor's Parcel No. 7268-021-034).

A. Specific Criteria. This site has been the home of Ernest and Lillian McBride, civil rights pioneers in Long Beach, since 1948 to the date of this Ordinance. This site was the second home purchased by an African-American person in that neighborhood, a conscious defiance of restrictive covenants in the real estate market. Ernest McBride was a co-founder of the Long Beach Chapter of the National Association for the Advancement of Colored People (NAACP) and served as its Secretary. The McBrides held many Long Beach Chapter NAACP meetings at this home. This site is associated with a long and successful campaign to advance the civil rights movement in Long Beach.

This neighborhood was the focus of the first efforts at residential desegregation in Long Beach. After the McBrides purchased their house, and after restrictive covenants were declared illegal by the Supreme Court, other African-Americans began to follow them in obtaining residences in the area. Today the neighborhood is occupied by a majority of African-American residents. The group of single-story bungalows on the 1400 block of Lemon Avenue, well-kept and small-scale, have retained their fundamental appearance, integrity and character that existed when Mr. and Mrs. McBride moved there in 1948.

The site contains a single-family, one-story remodeled Craftsman bungalow built in 1919 (1461 Lemon Avenue), plus a two-story structure fourplex at the rear (1463 Lemon Avenue). The bungalow remodeling consists of exterior stucco, replacement of porch supports with iron rails, replacement of the picture window on the facade. The scale and character of the structure at 1461 Lemon Avenue is consistent with others on the street. The building is not architecturally significant.

B. The Secretary of the Interior's "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" are incorporated by reference, and shall serve as standards and guidelines for future changes to the building. Demolition or removal of the structure will require a Certificate

of Appropriateness from the Cultural Heritage Commission. Other alterations, modifications or repair of the structure may be performed pursuant to valid permits, but shall not require Certificates of Appropriateness from the Cultural Heritage Commission. (Ord. C-7301 § 1, 1994)

16.52.920 The Dolly Varden Hotel Rooftop Sign.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following object as an historical landmark in the City: The Dolly Varden Hotel Rooftop Sign.

A. Location, Description and Reasons for Designation. Located at 335 Pacific Avenue, the Dolly Varden Hotel Rooftop Sign consists of two (2) panels of neon lettering, each positioned in a diagonal on the front of the roof and joined at the corners in the shape of a "V". The sign reads: "DOLLY VARDEN HOTEL...BATH IN EVERY ROOM". The top panel is shaped in a basic "T"-form with the words "Dolly Varden" forming the top bar of the "T", and "Hotel" the bottom section. The outline is irregular, with a flattened peak at the top. The words "Bath In Every Room" are located on a bar shape slightly below the top panel. The sign panels are elevated by supporting steel struts. The sign letters are in block capitals with a serif. They are made of neon for nighttime illumination.

The Dolly Varden Rooftop Sign is placed atop a rectangular, nondescript apartment hotel constructed in 1929. The building is not architecturally significant, nor does it have an identifiable architectural style. However, the rooftop sign is a vintage historical object, notable for its period design and for the charming and nostalgic message displayed. It is a visual landmark in the downtown. City permits do not exist for the sign, but based on stylistic inference, it appears to be a product of the 'thirties. Building permits for post-earthquake repairs were taken out in August 1933, including work on the roof; one could surmise that the sign was erected at that time.

The sign recalls a time when apartment hotels without amenities were common in the downtown. It is the only historic sign which contains an advertising message in addition to the name of the facility. It is a visually prominent feature both during the daytime and at night because of its neon. Its design and materials embody a typical "thirties" stylistic character.

The sign and the message on the sign on the roof of the Dolly Varden Hotel evoke the nostalgic flavor of Long Beach's past. The unique feature of this rooftop sign is the addition of a commercial message to the name of the hotel; this neon advertisement was placed on two (2) diagonal positions to catch the attention of travelers from both directions. It is an example or roadside vernacular design, similar to Route 66 artifacts and early examples of creative roadside commercial signage. It is also a reminder of Long Beach's prominence as a beach resort town, with profusion of small hotels close to the beachfront.

Dolly Varden's obituary paints a portrait of a colorful and eccentric person, a circus performer who hoarded jewels. She apparently did not live in Long Beach, but apparently had an admirer in Long Beach. The name Dolly Varden also belongs to a character in a Dickens' novel, "Barnaby Rudge". The name of the original owner who built the hotel was L.F. Dolly.

The silhouette and shape of the sign, the typeface of the letters, the use of neon and metal supporting struts, are all typical of 'thirties signs. This is a vintage neon sign, exemplifying the commercial benefits of colorful, illuminated signage. Neon became a very popular sign material in the 'thirties.

The Dolly Varden has been a prominent visual feature of downtown Long Beach for sixty (60) years and is regarded affectionately by many residents and visitors. Its distinctive visual qualities and charming message enhance the ambience of the downtown streetscape.

B. The Secretary of the Interior's "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" are incorporated by reference, and shall serve as standards and guidelines

for future exterior changes to the sign. All exterior changes, whether or not they require a building permit, shall require a Certificate of Appropriateness from the Cultural Heritage Commission. Any exterior alterations, modifications or repair of the sign shall be consistent with the character-defining architectural features, and shall not adversely affect the historical materials, design or detailing. (Ord. C-7345 § 1, 1995)

16.52.930 The Le Grande Apartments.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Le Grande Apartments.

A. Location, Description and Reasons for Designation. Located at 635 East 9th Street, this is a two-story, twenty (20) unit courtyard apartment designed in the Chateauesque style. This style became popular in Southern California in the 'twenties and appeared occasionally in apartment buildings in Long Beach at that time. The design is asymmetrical, with the entry under a projecting Romanesque portal of triple attached columns and a series of arches decorated with geometric motifs. The upper portion has flattened decorative corbels. The wrought iron gate has a series of arches, echoing the curves of the portal. The courtyard is landscaped, and exterior stairs lead to the upper units. There is a mansard roof, turrets, and partial dormers. Multipaned wood sash windows are used. The exterior stucco is strongly textured in curves, giving a hand-troweled appearance.

This courtyard apartment building was constructed during a period of very rapid growth for the City that had been stimulated by a strong demand for rental housing in a fast-growing economy. The 'twenties were boom years in Long Beach, due in part to the new oil industry, but also to the flourishing beach resort economy, and business and industrial growth. The type of housing represented here served working class people. The architectural charm and picturesque quality must have been an attempt to give this building a competitive edge in an expanding housing market.

This building is an excellent example of the Medieval Revival Chateauesque style, which was popular in this period. In the years following the first World War, exposure to European castles resulted in Chateauesque Revival buildings. Long Beach has other examples built at this time, such as the Lowena Historic District and the Gaytonia. The architectural type represented here is courtyard housing, which was a popular form of housing in Southern California from approximately 1915-1935. Two (2) stories of living units are arrayed in parallel wings around a central landscaped courtyard, screened from the street by a Romanesque Revival portal and decorative entry gate. The use of exterior stairs and varied massing conveys the quality of a miniature townscape to the complex.

B. The Secretary of the Interior's "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" are incorporated by reference, and shall serve as standards and guidelines for future exterior changes to the building. All exterior changes, whether or not they require a building permit, shall require a Certificate of Appropriateness from the Cultural Heritage Commission. Any exterior alterations, modifications or repair of the structure shall be consistent with the character-defining architectural features, and shall not adversely affect the historical materials, design or detailing. (Ord. C-7345 § 2, 1995)

16.52.940 The Silver Bow Apartments.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Silver Bow Apartments.

A. Location, Description and Reasons for Designation. Located at 330 Cedar Avenue, this three-story red and tan brick apartment building was built in 1915. This building is significant as an intact Renaissance Revival apartment building, of high quality materials and design, from any early period in Long Beach's history (1915). The architect was F.L. Lindsay, whose office was at 171 Locust in Long Beach; the original client was Alex

Husband. Construction drawings for post-earthquake repairs in 1933 show reconstruction and repair according to the original plans, rather than a modernization. The repairs were designed by Harvey Lochridge, a local and prominent structural engineer. The facade has finely detailed masonry construction, with molding and panels defined by contrasting patterns of glazed tan brick. The prominent cornice, with large dentils and paired brackets, is original. The brackets are detailed in Classical Revival style. White accents are provided by the cornice, horizontal molding between the stories, and central balconies. The symmetrical facade has a recessed central doorway with recessed spaces and balconies above. The balconies have decorative iron railings and a fire escape ladder. The entry door has two (2) side lights. The entry stairs and hallway are white marble. The windows are tripartite, the central panel containing a transom and the two (2) narrower side windows double-hung. Seismic reinforcing anchor bolts are visible on the side plain red brick walls, where the windows have segmented arches.

This three-story apartment building today is one of the earliest masonry apartment buildings in the City, constructed in 1915. At the time it was built, it was a major residential structure in its neighborhood, which consisted primarily of smaller scale wood frame dwellings. Today it stands out as one of the oldest surviving brick apartment buildings in Long Beach, most of which were constructed in the Twenties. It is a precursor to the expansion of high rise residential apartment construction in Long Beach in the decade of the Twenties.

The building's Renaissance Revival style had features that later became typical of Long Beach three-story apartment buildings. The facade is symmetrical, with the central entryway placed in a recessed bay. Second and third story balconies overlook the street. The clear demarcation of each story and each bay, the prominent classical cornice crowning the roof, the detailing of the facade brickwork, the white decorative accents against a brick background, are hallmarks of the Renaissance Revival style. The style of the windows reference another contemporary residential style: Craftsman, with tripartite windows and use of a transom in the central pane.

This building relates to the Willmore City Historic District just adjacent to its north, by era of construction and building type. It also relates to adjacent historic buildings at the corner of Third Street and Cedar Avenue: the First Congregational Church (1914) and the Willmore (1924).

The building has a monumental presence on the street due to its scale, materials and design. Its name is displayed in large-scale letters over the entryway. It is a visual landmark, having survived unchanged for eighty (80) years.

B. The Secretary of the Interior's "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" are incorporated by reference, and shall serve as standards and guidelines for future exterior changes to the building. All exterior changes, whether or not they require a building permit, shall require a Certificate of Appropriateness from the Cultural Heritage Commission. Any exterior alterations, modifications or repair of the structure shall be consistent with the character-defining architectural features, and shall not adversely affect the historical materials, design or detailing. (Ord. C-7345 § 3, 1995)

16.52.950 Casa Aitken.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following object as an historical landmark in the City: Casa Aitken.

A. Location, Description and Reasons for Designation. Located at 725 East Eighth Street, this two-story Spanish Colonial Revival fourplex has a U-shape around an interior courtyard located at the side of the building along the alley. An exterior staircase leading up from the patio makes two (2) angled turns to become an exterior stucco balcony with shaped wood supports. There is an ornamental pool with multicolored tile in the courtyard attached to the building. Several of the large windows are made of stained glass. A few of the smaller windows have been replaced with modern

sliders. There is a shaped cornice under the roof tiles for the wing on Eighth Street. The original stucco exterior and roof tiles have been maintained. The condition is good.

This four (4) unit building was constructed in 1932, during the Depression, and prior to the Long Beach earthquake. This was a period in which construction activity was very slow; Long Beach does not have many examples of building construction in 1932. The housing market was still viable, and the quality of the design and materials indicates the continuing demand for well-designed, multi-family, middle-class residences in the City.

The Spanish Colonial Revival architectural style was at its peak of fashion in the early Thirties. This example is richly detailed, with many features exemplifying the full flowering of this style: the exterior balcony with its turned woodwork, accessed by an exterior tiled stair; wood corbelled supports; stucco walls and terra cotta tile roof; some stained glass windows; and particularly the multicolored tile fountain in the courtyard.

The architectural type represented here is courtyard housing, with dwelling units arranged around a central courtyard, often with a fountain as the visual focal point. This housing type was popular in Southern California from approximately 1915-1935, and was associated with the romance of Southern Spain. This example is half of a full courtyard, with a U-shaped configuration surrounding a courtyard containing a Spanish/Moorish colored tile fountain.

B. The Secretary of the Interior's "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" are incorporated by reference, and shall serve as standards and guidelines for future exterior changes to the building. All exterior changes, whether or not they require a building permit, shall require a Certificate of Appropriateness from the Cultural Heritage Commission. Any exterior alterations, modifications or repair of the structure shall be consistent with the character-defining architectural features, and shall not adversely affect the historical materials, design or detailing. (Ord. C-7381 § 1, 1996)

16.52.960 St. John's Missionary Baptist Church.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: St. John's Missionary Baptist Church.

A. Location, Description and Reasons for Designation. Located at 741 East Tenth Street, this simplified Gothic Revival church is notable for its magnificent stained glass windows. Two (2) large stained glass windows with a segmental arch occupy the main facades; they are subdivided vertically by wood framing near the sides and a curved transom at the top. The wall surface has two (2) spaced pilasters on each side of the window. The nave and transept are treated similarly on the exterior, as rectangular shapes terminating in a peaked ogee arch. A rectangular corner tower is slightly recessed along Tenth Street where the entry door is placed. The top is shaped as a flattened pointed arch on each side above cutaway corners. The tower contains elongated rectangular windows and a large vent on each side with a segmented arch top. The exterior material is concrete. A blade sign shaped to echo the architectural forms contains the name of the church, and appears to be contemporary or nearly so. The condition is good.

This large-scale church is a significant architectural monument in its neighborhood, and is a notable visual landmark. It is particularly significant for its large and richly designed stained glass windows.

The history of this monumental historical church reveals the strength and cultural importance of religious organizations in the history of Long Beach. The building was constructed by the First Church of the Nazarene, which was founded in Long Beach in 1905. The Church purchased the site in 1919 and constructed the building in 1923, using the building for religious and community purposes until 1956. Earthquake damage to the church in 1933 was repaired and the building restored. Among their most popular activities was a radio broadcast known as 'The Little Church of

the Fireside", launched in 1947. The congregation continued to grow and moved into a larger building which they constructed at 5253 Los Coyotes Diagonal in 1960. The existing building at Tenth and Olive was purchased by St. John Baptist Church, which had been founded in 1949 as a Bible study group. They were formally established as a church in 1952 and moved into the church building in 1958. The Church has a major educational mission. The people associated with the formal establishment of a church in the community and those who served as pastors may all be considered significant to the community. For the Nazarene Church, the founding evangelist was W. C. Wilson, who organized the Church in 1905 and served twice as its pastor. During the pastorate of Rev. J. I. Hill from 1919 to 1924, the subject church building was constructed. Rev. J. E. Williams served as pastor there from 1929 to 1940 and established the radio broadcast program. The twelve (12) founders of St. John Missionary Baptist Church were: John S. Grigsby, Malissa Green, Willa Connor, Palmer Dickson, Sam Wilks, William Atwater, Lola Atwater, Rufus Harris, Robert Hill, Jewel Hill, Jennie Mae Whitfield and R. B. White. The first pastor was Rev. S. Noble; the current pastor is Dr. Ralph J. Mosby, Jr.

The style of this building is Gothic Revival, a style traditionally in favor with church architecture in America because of its long European heritage associated with medieval cathedrals. The early years of the Twenties in Southern California saw the proliferation of "period revival" styles in architecture. Particularly outstanding in this building are the monumental stained glass windows, one appearing on each facade of the corner-sited building.

Typical of church architecture is the monumental scale, the impressive and architecturally elaborate facades, and the use of a tower, in this example a single corner tower.

This building has been part of its residential neighborhood for more than seventy (70) years and is a visual landmark in the neighborhood due to its scale and magnificent stained glass. Its corner siting enhances its visual prominence.

B. The Secretary of the Interior's "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" are incorporated by reference, and shall serve as standards and guidelines for future exterior changes to the building. All exterior changes, whether or not they require a building permit, shall require a Certificate of Appropriateness from the Cultural Heritage Commission. Any exterior alterations, modifications or repair of the structure shall be consistent with the character-defining architectural features, and shall not adversely affect the historical materials, design or detailing. (Ord. C-7381 § 2, 1996)

16.52.970 The James Beer Residence.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The James Beer Residence.

A. Location, Description and Reasons for Designation. Located at 1503 East Ocean Boulevard, The James Beer Residence is a two-and-a-half-story, single-family residence, Mission Revival in style. The exterior is light grey pebbly concrete; the roof is composition. Extended rafter tails support wide eaves. The main mass of the house is intersected by a transverse mass centrally placed in the facade, containing a recessed porch and picture window above. Tall curvilinear gables accented with molding to highlight the outline rise above the pitched roof at each of the gable ends, with a lower one in the rear. Inside the two (2) side gables is a quatrefoil inset with a small square window. The windows are Craftsman in type, with divided light transoms. Each window has a label molding above and a plan lintel below. There are several square bays and subsidiary shed roofs breaking up the massing. The deep recessed porch has a decorative wrought iron gate which extends around the west side of the house on top of a low concrete retaining wall. A similar low concrete wall on the east side is plain. The porch pillars have strap molding in place of capitals, with a central dentil on each side of the molding. A landscaped pergola extends the porch on the west side. The three (3)

steps leading to the porch have curved corners. Inside, wood beams are visible on the ceiling. There is a large garage and second-story unit accessory structure at the rear facing the side street.

This house was constructed in 1912 and is one of the oldest original residences remaining in place on this Section of Ocean Boulevard, west of Bluff Park Historic District. It is one of the few remaining Mission Revival style buildings in the City; two (2) others identified to date are a residence in Carroll Park, and the Southern Pacific Railroad Depot. Many Mission Revival buildings had been built here in the early years of this century, but many were destroyed in the 1933 earthquake or demolished over the years. The first owner, and probable builder, was contractor J. C. Beer, who lists his occupation as building contractor. He lived across Ocean Boulevard at 1400 until 1914 when he moved to this house, at that time the address being 1403 East Ocean. His office was at the Long Beach Pleasure Pier. He lived at this address through the Twenties. The James Beer Residence recalls the early history of Long Beach when homes were first constructed on prime lots along Ocean Boulevard. Its architectural style, Mission Revival, is also a rare historical survivor, recalling a style that was popular in Southern California from 1905 to 1915. Many early photographs of homes, schools, churches and hotels show the popularity of Mission Revival. However, almost all examples of this style in Long Beach are gone today. This building recalls the lost architecture of an earlier period. The Mission Revival's most distinctive feature was the curvilinear gable, derived from Mission churches. The exterior material was stucco or concrete, reflecting adobe prototypes. Other typical features were cubic massing, square piers, and simple unadorned surfaces. When ornament was used, it was Spanish Baroque in character, such as the quatrefoil in the gable. Often, Craftsman features were mixed in, such as the protruding rafter tails supporting the roof and the window type with subdivided transom lights.

The James Beer Residence is part of the evolution of residential development along Ocean Boulevard, the City's premier residential location. It represents the first phase of construction, which consisted of large single-family homes on prime lots with ocean views.

B. The Secretary of the Interior's "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" are incorporated by reference, and shall serve as standards and guidelines for future exterior changes to the buildings. All exterior changes, whether or not they require a building permit, shall require a Certificate of Appropriateness from the Cultural Heritage Commission. Any exterior alterations, modifications or repair of the structures shall be consistent with the character-defining architectural features, and shall not adversely affect the historical materials, design or detailing. (Ord. C-7393 § 1, 1996)

16.52.980 The Garvey House.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Garvey House.

A. Location, Description and Reasons for Designation. Constructed between 1904 and 1906 and located at 2718 East Seventh Street, the Garvey House is a two and one-half-story Victorian with all of its original features intact. It has a steep cross-gable roof with pendant trefoil ornament on the gable edges. The gable ends are slightly flared, and the roof edges wrap partially around the corners. There is a skirt roof at the midpoint of the gable and fishscale shingles above. The corner porch is recessed and supported by slender Doric columns. The picture window adjacent is tripartite with a fixed center pane and two (2) side casements. The transom has narrow vertical muntins ending in a pointed arch; this same motif is found in the upper panes of many windows on the house. The casements have similar muntin patterns with a diamond shape in the center. The front entry door is paneled with a large oval pane of beveled glass. The small hall window has the pointed arch ornate muntin pattern. On the east side is a shallow bay, containing three (3) windows, again with the ornate upper panes. The facade has a second-story

balcony with brackets and ornate turned rails in a central panel. Rear decks on both floors are enclosed by intricate cut-out patterned rails. The exterior is clad in narrow shiplap siding. All the windows and doors have wide board frames. There is also an original barn and carriage house in the rear, and vintage gaslight fixtures. The interior contains its original floor plan, a stair with ornate baluster, and an ornate, baroque-inspired fireplace. Later additions include a fenced enclosure on the west, picket fences and a picket archway on the east, and a jacuzzi pavilion.

The historic value of this house is that it represents the first phase of residential settlement in the City of Long Beach, in the first decade of this century, when the rate of population growth was six hundred ninety percent (690%), the highest in the Nation. Residential development along Seventh Street was just beginning in the early 1900s. Very few of the first homes built on Seventh Street survive today on this commercial thoroughfare. This home is one of the best preserved early homes on Seventh Street, and one of the finest examples of Victorian architecture in the City. The trefoil pendants and rich window detailing are unusual features in Long Beach Victorians, which generally are simple and austere.

B. Rationale for Historic Landmark Designation. In accordance with the provisions of Section 2.63.050 of this Code, the City Council finds that the following reasons exist relative to the designation of the Garvey House as an historic landmark:

1. The Garvey House possesses a significant character, interest and value attributable to the development, heritage and cultural characteristics of the City, the Southern California region, and the State of California. The house is one of the only remaining Victorian homes surviving on Seventh Street. Its continued presence on the street denotes the first residential construction in the area, most of which has to date disappeared. The location of the house indicates the patterns of residential settlement when Long Beach was a young City, with homes dispersed over a wide area several miles from downtown. This Victorian house is one of the larger-scale early residences in the City.

2. The Garvey House portrays the environment in an era of history characterized by its distinctive architectural style. The house is an excellent and well-preserved example of Victorian architecture, with gothic revival features. Its steeply pitched roof, slender porch columns with ornate capitals, elaborate window mullions, narrow clapboard siding, and decorative shingles under the gable, are all typical Victorian features.

3. The Garvey House embodies those distinguishing characteristics of an architectural type or engineering specimen. The house has typical features of the Victorian dwelling: a steep roof containing an attic, an off-set front porch at one corner, windows with tall proportions, enriched surface textures and details. The use of jigsaw decorative ornament, found on the roof eves and deck railings is also typical of the Victorian fascination with using machines to intricately cut and turn wood. The house is solid redwood construction. In addition, the accessory structures are reminders of the Victorian era. The carriage house and barn still exist in their original condition behind the house. The carriage house has raised tracks on the floor for the wheels of the carriage and the barn has a hayloft for the horse, and the original barn doors.

C. General Guidelines and Standards for Any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the United States Secretary of the Interior (Revised, 1991), as amended, as well as the "Procedures for Administering the Certificate of Appropriateness" found in Section 2.63.070 of this Code are incorporated herein by this reference. The guidelines are to be used as standards for the Cultural Heritage Commission in making decisions about Certificates of Appropriateness as required by Chapter 2.63 of this Code. The guidelines are an aid to property owners and others formulating plans for new construction, for rehabilitation or alteration of an existing structure, and for site development. The goal of the Certificate of Appropriateness review is to retain and preserve all original architectural materials and design features; to encourage rehabilitation which

restores original historic fabric rather than remodels; and to ensure architectural compatibility between new and old.

D. Standards and Guidelines.

1. Changes requiring a Certificate of Appropriateness from the Cultural Heritage Commission are as follows:

a. Alterations or additions to roof; change in roof materials.

b. Additions.

c. Alterations to structure including foundation.

d. Alterations to windows.

e. Changes to doors and doorways.

f. Changes to exterior materials or colors.

g. Relocation of exterior walkways or driveways.

h. Alteration or addition to fencing and exterior patio walls.

2. The following guidelines shall be standards to guide property owners, architects, contractors and the Cultural Heritage Commission in reviewing proposed changes:

a. Additions shall be compatible in materials and design, and shall be subordinate in scale, to the existing building.

b. Important architectural features which define the character of the historic style shall not be removed or obscured. These include roofline, exterior cladding, historic wood sash windows on the facade or sides of the house, porch supports, original doors, and other original structural and decorative features. (Ord. C-7448 § 1, 1997)

16.52.990 The Bay Hotel.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Bay Hotel.

A. Location, Description and Reasons for Designation. Constructed in 1924 and located at 318 Elm Avenue, the Bay Hotel is a rectangular three-story brick building with penthouse, Italian Renaissance in style. It contains retail storefronts at the ground floor and two (2) floors of residential units above. The roof is flat. The facade is divided into three (3) bays; the central bay with five (5) evenly-spaced rectangular window openings and the side bays one (1) window wide. The side bays contain two-story arches, each composed of radiating brick with keystones and terra cotta columns. Within the arches is a semicircle of decorative terra cotta tile at the top, followed by a window, then a three (3) foot by four foot (4') grid of decorative terra cotta tile and another window at the bottom. The decorative tile has a matte finish with muted tones of green, cream and coral. The midpoint above the top windows has an inset circle. The facade brick is golden colored and textured with brick bands marking each story. The sides and rear are common brick with ghosted signage. The four (4) ground-floor storefronts have large plate glass show windows with recessed glass doors. The bulkheads are ceramic tile, overpainted. There is a wide opaque glass transom with panels divided by turned wood posts. Above the transom runs a frieze, ornamented with decorative polychrome terra cotta, repeated in side pilasters framing the outside perimeter of the storefronts. The windows are double hung, multi-paned wood sash. There is a fire escape on the two (2) northern-most windows of the central bay.

The exterior is intact and unaltered except for a chopped-off cornice line, the result of post-1933 earthquake repairs. Original drawings show a tile-covered shed roof between two (2) low-side towers. The original steel casement windows have been recently replaced with double-hung wood sash multi-paned windows as part of a recent rehabilitation and seismic upgrade.

The building was constructed as a "Bachelor Hotel", with thirty (30) small-size units on the second and third floors arranged around a central light court. There were central shared bathroom facilities, and a two (2) room penthouse for the manager at the top. The original drawings dated 1924 were signed by contractor T. S. Shutt, whose office was at 140 Bonito in Long Beach. A building listed as Shutt Building Apartments was located at 401 ½ East Third Street and 308 Elm Avenue. Construction drawings in City Hall mi-

crofiche files also show earthquake repairs, presumably after the 1933 earthquake with the name of Gilbert Stanley Underwood, architect, written in at 101 American Avenue. However, City Directories do not confirm this.

The building is significant as an intact example of mixed-use residential apartment hotel combined with ground floor storefronts, a building type common in the 1920s. Architecturally, it is a very good example of Renaissance Revival design with fine facade brickwork and extra detailing such as the inset arches and decorative polychrome terra cotta. It is unusual to have the original storefronts and transoms perfectly preserved.

B. Rationale for Historic Landmark Designation. In accordance with the provisions of Section 2.63.050 of this Code, the City Council finds that the following reasons exist relative to the designation of the Bay Hotel as an historic landmark:

1. The Bay Hotel possesses a significant character, interest or value attributable to the development, heritage or cultural characteristics of the City, the Southern California region and the State of California. In addition to its architectural features, the Bay Hotel functioned as a "working mens" house and is evidence of the economic boom of Long Beach in the early 1920s, in part the result of the Signal Hill oil strike. Many jobs were created in the oil fields, as well as in other parts of a booming local economy. The use of the Bay Hotel has remained consistent over seven (7) decades. While there are other examples of mixed use projects remaining in downtown Long Beach, the Bay Hotel is architecturally the most distinguished.

2. The Bay Hotel portrays the environment in an era of history characterized by its distinctive architectural style. The Renaissance Revival style is carried out in composition and in detailing. The facade is divided into a base, mid-section and cornice. It is also divided into three (3) bays, with five (5) evenly-spaced rectangular windows in the central bay, flanked by arches in the side bays. Each section is clearly articulated with marked divisions. Panels of terra cotta ornament, geometric and foliate in design, are placed in the frieze above the transom windows, the pilasters at the ground floor corners, and around the windows in the arched sections. The facade brickwork is gold textured brick, while common red brick is used for the side and rear walls.

3. The Bay Hotel embodies those distinguishing characteristics of an architectural type or engineering specimen. The hotel exemplifies the major characteristics of a Renaissance Revival mixed use building, including its original storefronts which have never been remodeled.

4. The Bay Hotel is part of or related to a distinctive feature and should be developed or preserved according to a specific historic, cultural or architectural motif. The Bay Hotel was part of the downtown residential district of the 1920s, which produced apartments, single-room occupancy buildings as well as elegant apartment hotels in Long Beach. As a brick apartment building over commercial storefronts, it is similar to the Broadlind Hotel, the Kennedy Hotel and others. The historical theme is housing patterns of the 1920s.

C. General Guidelines and Standards for Any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the United States Secretary of the Interior (Revised, 1991), as amended, as well as the "Procedures for Administering the Certificate of Appropriateness" found in Section 2.63.070 of this Code are incorporated herein by this reference. The guidelines are to be used as standards for the Cultural Heritage Commission in making decisions about Certificates of Appropriateness as required by Chapter 2.63 of this Code. The guidelines are an aid to property owners and others formulating plans for new construction, for rehabilitation or alteration of an existing structure, and for site development. The goal of the Certificate of Appropriateness review is to retain and preserve all original architectural materials and design features; to encourage rehabilitation which restores original historic fabric rather than remodels; and to ensure architectural compatibility between new and old.

D. Standards and Guidelines.

1. Changes requiring a Certificate of Appropriateness from the Cultural Heritage Commission are as follows:

a. Alterations or additions to roof; change in roof materials.

b. Additions.

c. Alterations to structure including foundation.

d. Alterations to windows.

e. Changes to doors and doorways.

f. Changes to exterior materials or colors.

g. Signage.

2. The following guidelines shall be standards to guide property owners, architects, contractors and the Cultural Heritage Commission in reviewing proposed changes:

a. Additions shall be compatible in materials and design, and shall be subordinate in scale, to the existing building.

b. Important architectural features which define the character of the historic style shall not be removed or obscured. These include brick and terra cotta, original storefronts and transoms, window placement, and other original structural and decorative features. (Ord. C-7448 § 2, 1997)

16.52.1000 The Ringheim/Wells House.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historical landmark in the City: The Ringheim/Wells House.

A. Location, Description and Reasons for Designation. Constructed in 1907-08 and located at 4031 East Fifth Street, the Ringheim/Wells House is one of the first residences constructed in its neighborhood in southeast Long Beach. The land was mapped in 1888 as the Alamitos Beach Townsite, and the subdivision of the block was recorded as Brown's Tract in 1904. The first owner was Sarah K. Ringheim. A two and one-half-story Victorian, with steeply pitched cross gable roof, the house was built at a time when the Victorian style was passing out of favor and replaced by Craftsman style architecture. The house shows the survival of conservative architectural styles in Long Beach and its location demonstrates a dispersed pattern of residential settlement when the City was young. In 1907, the location of the house was outside of the City limits. The City experienced its largest surge in population in the decade 1900 through 1910, and the survival today of the Ringheim/Wells House in its outlying location is a reminder of the tremendous growth of Long Beach at that time. The house is clad in narrow shiplap siding which extends down to the ground and to the porch wall. The attic story is faced with fishscale shingles, which are graduated in size above the vent. A horizontal molding strip runs from the porch rail under the windows and around the house. On the front, a pair of double-hung windows with shutters are placed in the center of the second story. All the windows are wood sash double-hung, with a wide board surround. The entry door has a large pane of glass and two (2) side lights extending down two-thirds of the door height. The front porch, five (5) steps up, is offset to one side, balanced by a bay window on the other side. A second bay window is placed on the west wall, so that the living room has two (2) bay windows. The porch is supported by paired Corinthian columns. A plain frieze under the porch roof connects to the front bay window. The cornice is boxed and the eaves extend around the corners. The roof material is composition. A second smaller house was added in the rear yard in 1923 and a garage was constructed in 1929. There is a white picket fence on the property line, and the interior of the house is largely intact and original. Overall, the condition of the home is excellent.

B. Rationale for Historic Landmark Designation. In accordance with the provisions of Section 2.63.050 of this Code, the City Council finds that the following reasons exist relative to the designation of the Ringheim/Wells House as an historic landmark:

1. The Ringheim/Wells House possesses a significant character, interest or value attributable to the development, heritage and cultural characteristics of the City, the Southern California region, and the State of California. The Ringheim/Wells

House is significant as an outstanding example of Victorian architecture in Long Beach, and shows a continuing popularity of an older architectural tradition in this community where Victorians continued to be built during the first decade of the 1900s. The house also illustrates the early widely disbursed patterns of settlement in the Long Beach area, outside of the City limits. The house is the largest Victorian in the neighborhood, and is one of the first homes constructed in the area. The house was constructed in 1907-08 and has been occupied continuously since that time, but has retained its original architectural integrity. It is one of the oldest and most monumental homes in the neighborhood.

2. The Ringheim/Wells House portrays the environment in an era of history characterized by its distinctive architectural style. The house is an excellent and intact example of Victorian architecture, which was prevalent in Long Beach from the 1880s through the early 1900s. It has all of the characteristics of the Victorian style: a high profile with tall, narrow proportions; steep cross gable roof with boxed fascia; an offset front porch with decorative columns; bay windows; narrow clapboard siding and fishscale shingle cladding.

C. General Guidelines and Standards for Any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the United States Secretary of the Interior (Revised, 1991), as amended, as well as the "Procedures for Administering the Certificate of Appropriateness" found in Section 2.63.070 of this Code are incorporated herein by this reference. The guidelines are to be used as standards for the Cultural Heritage Commission in making decisions about Certificates of Appropriateness as required by Chapter 2.63 of this Code. The guidelines are an aid to property owners and others formulating plans for new construction, for rehabilitation or alteration of an existing structure, and for site development. The goal of the Certificate of Appropriateness review is to retain and preserve all original architectural materials and design features; to encourage rehabilitation which restores original historic fabric rather than remodels; and to ensure architectural compatibility between new and old.

D. Standards and Guidelines.

1. Changes requiring a Certificate of Appropriateness from the Cultural Heritage Commission are as follows:

a. Alterations or additions to roof; change in roof materials.

b. Additions.

c. Alterations to structure including foundation.

d. Alterations to windows.

e. Changes to doors and doorways.

f. Changes to exterior materials or colors.

g. Changes to exterior walkways or driveways.

h. Alteration or addition to fencing.

2. The following guidelines shall be standards to guide property owners, architects, contractors and the Cultural Heritage Commission in reviewing proposed changes:

a. Additions shall be compatible in materials and design, and shall be subordinate in scale, to the existing building.

b. Important architectural features which define the character of the historic style shall not be removed or obscured. These include roofline, exterior cladding, historic wood sash windows on the facade or sides of the house, porch supports, original doors, and other original structural and decorative features. (Ord. C-7455 § 1, 1997)

16.52.1010 The Kale House and attached Music Art Hall.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following buildings as historical landmarks in the City: The Kale House and attached Music Art Hall.

A. Location, Description and Reasons for Designation. Constructed in 1907 and located at 853 Linden Avenue, the Kale House was constructed by owner and builder W. S. Kale in an eclectic and unique architectural style. The house

combines Victorian, Craftsman and Prairie features. The plaster exterior and sand finish is original. The main entrance on Linden Avenue is set off by a centrally placed projecting front porch with flattened arches continuing into wide pier supports, and a flat roof. A second-story door accesses the roof as a balcony. A second-story round tower with conical roof is placed at the corner; it is supported by wood brackets and has a series of double-hung windows with paired semicircular arches in mirror image in the upper pane. A series of three (3) windows similar in design to the tower, but wider, forms a bay at the corner of the first floor. The front porch is asymmetrical and extends under the corner tower as an open patio with low retaining wall. A composition truncated hip roof is placed over the house, and the whole roof has exposed extended rafter tails. Windows are wide, framed with wood with finely detailed molding. Many windows have the opposed semicircular pattern of muntins in the transom, in various dimensions. South of the porch, the picture window is shaped as a flattened arch with three-part transom, with small opposed semicircles in the center. Above is a Craftsman-style tripartite window with fixed center pane containing the semicircles in the transom, and narrow double-hung windows on both sides. The front door is a Craftsman type with square panes, three (3) over three (3). On the Ninth Street side, a tapered chimney is pierced by a window on the first floor. A small addition of a bathroom and closet from 1941 is found on the south side facing Linden Avenue. A one-story passageway with vertical siding links the house to the assembly hall at 440 East Ninth Street.

The attached Music Art Hall at 440 East Ninth Street was originally constructed in 1936 and later became known as the Alford Arts Academy. As the size of the hall was equivalent to a small-scale, single-family house, the hall blended easily into the residential neighborhood. During its history, two (2) different religious organizations occupied the hall: first the Church of Religious Science, then Temple Beth-El. The mix of residential, artistic and religious institutional uses of the building over the years has contributed positively to the cultural life of the neighborhood and the City. The hall is clad in plaster and has a gable roof, the edge of which is framed by a frieze. Its symmetrical facade is dominated by an arched entryway framed by pilasters and molded arch trim, articulated by column bases at the springing of the arch. The semicircular door is recessed behind a decorative wrought iron gate, with glass fanlight and a row of rectangular windows in the door. A square window with detailed wide molding is placed above the door. Two (2) large, tall narrow windows with no exterior framing are slightly inset on each side of the entry. The interior contains a wood floor, a stage, and an elaborate wood truss system of shaped exposed beams under the roof.

Both the Kale House and the attached Music Art Hall have a unique history and significance in the City. William S. Kale, original owner and builder, spent more than twice the usual cost of building the single-family house; the cost was four thousand five hundred dollars ($4,500.00) as compared with the usual building cost of from one thousand five hundred dollars ($1,500.00) to two thousand dollars ($2,000.00). This expenditure of money explains the fine craftsmanship and unique design features of the structure. Additionally, Mr. Kale constructed an "auto barn" in 1907, indicating that he was an early car owner. Mr. Kale lived on the property until 1914 and was succeeded by R. M. Moore, who worked in real estate. In 1925, the house was occupied by Sam L. Moore, also in real estate. In 1931, Rolla Alford, a music teacher, moved in along with E. T. Bell, and it was Mr. Bell who constructed the Music Art Hall.

The history of the Kale House and the Music Art Hall and their evolution are interesting chapters in the history of Long Beach, illustrating the ebb and flow of cultural and religious activities intertwined with the history of individual people. The transformation of a sumptuous and imposing residence into a cultural institution, accomplished by Rolla Alford, took place during the Great Depression and Second World War. Continued residential use coexisted with art activities.

The two (2) structures have a high level of architectural style. The Kale House has many similarities to other homes in the area constructed in the same time period; however, it is a unique creation with many customized architectural features and design amenities. The stucco cladding, simple massing, low-pitched roof and horizontal projecting porch relating to the Prairie style; the corner tower and bay, intricate moldings and patterned window mullions derive from Victorian precedents; and the exposed roof rafters, window type and proportions, door, and interiors, come from the Craftsman style. The Arts Hall also defies stylistic classification, blending motifs from different architectural traditions. The facade is a simplified Spanish Renaissance, while the interior wood truss ceiling is reminiscent of Gothic-style churches.

B. Rationale for Historic Landmark Designation. In accordance with the provisions of Section 2.63.050 of this Code, the City Council finds that the following reasons exist relative to the designation of the Kale House and the Music Art Hall as historic landmarks:

1. The Kale House and the Music Art Hall possess a significant character, interest or value attributable to the development, heritage and cultural characteristics of the City, the Southern California region, and the State of California. When originally constructed in 1907 at great expense, the Kale House was intended by its owner/builder to be a significant and prestigious home. The home demonstrates the high quality and style in residential architecture that is sometimes manifest during the early years of Long Beach's development. While the first decade of the 1900s saw a building boom in Long Beach, this house is both part of that boom and distinguished from it by its unique architectural qualities. The designer created an eclectic blend of three (3) different architectural styles: Victorian, Craftsman and Prairie. The window designs are unique and individual. A further dimension of cultural value was added with the construction of the adjacent Music Art Hall in 1936, which later became the Alford Arts Academy. As its size was equivalent to a small-scale, single-family house, the Hall blended easily into the residential neighborhood. Later, two (2) different religious organizations occupied the property: first the Church of Religious Science, then Temple Beth-El. The mix of residential, artistic and religious institutional uses of the buildings over the years has contributed positively to the cultural life of the neighborhood and the City.

2. The Kale House and the attached Music Art Hall contain elements of design, detail, materials or craftsmanship which represent a significant innovation.

The eclectic design of the Kale House and many of its unique design features represent a significant innovation for its period. The stucco cladding, simple massing, low-pitched hip roof and projecting front porch with its strong horizontal roofline are features of Prairie architectural style. The corner turret with a conical roof and a bay window below derive from Victorian Queen Ann architecture. The window types, front door, extended rafter tails and many interior design features relate to the Craftsman style. The opposing semicircular designs in the upper portion of the windows are unique and unusual. The Music Art Hall likewise reflects an eclectic style with many unique design features including a simplified Spanish Renaissance facade and interior wood truss ceiling reminiscent of Gothic-styled churches.

3. The Kale House and the attached Music Art Hall represent an established and familiar visual feature of a neighborhood or community due to its unique location or specific distinguishing characteristics. The unusual architectural design of the Kale House, with its corner turret and conical roof placed at the intersection of Ninth Street and Linden Avenue, is a visual landmark in the neighborhood. The coupling of the house with the attached Music Art Hall is likewise unique and distinctive. The bold, simple design of the auditorium facade establishes a strong visual presence in its residential neighborhood.

C. General Guidelines and Standards for Any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the United States Secretary of the Interior (Revised, 1991), as amended, as well as

the "Procedures for Administering the Certificate of Appropriateness" found in Section 2.63.070 of this Code are incorporated herein by this reference. The guidelines are to be used as standards for the Cultural Heritage Commission in making decisions about Certificates of Appropriateness as required by Chapter 2.63 of this Code. The guidelines are an aid to property owners and others formulating plans for new construction, for rehabilitation or alteration of an existing structure, and for site development. The goal of the Certificate of Appropriateness review is to retain and preserve all original architectural materials and design features; to encourage rehabilitation which restores original historic fabric rather than remodels; and to ensure architectural compatibility between new and old.

D. Standards and Guidelines.

1. Changes requiring a Certificate of Appropriateness from the Cultural Heritage Commission are as follows:

a. Alterations or additions to roof; change in roof materials.

b. Additions.

c. Alterations to structure including foundation.

d. Alterations to windows.

e. Changes to doors and doorways.

f. Changes to exterior materials or colors.

g. Changes to exterior walkways or driveways.

h. Alterations or addition to fencing.

2. The following guidelines shall be standards to guide property owners, architects, contractors and the Cultural Heritage Commission in reviewing proposed changes:

a. Additions shall be compatible in materials and design, and shall be subordinate in scale, to the existing building.

b. Important architectural features which define the character of the historic style shall not be removed or obscured. These include roofline, exterior cladding, historic wood sash windows on the facade or sides of the house, porch supports, original doors, and other original structural and decorative features. (Ord. C-7476 § 1, 1997)

16.52.1020 The Foster & Kleiser Building.

Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following buildings as historical landmarks in the City: The Foster & Kleiser Building, constructed in 1923, and a garage plus an office building constructed by Foster & Kleiser in 1930.

A. Location, Description and Reasons for Designation. Constructed in 1923, added on to in 1930, and located at 1429 Magnolia Avenue, the Foster & Kleiser Building was designed by noted Long Beach architect Clarence Aldrich in the Mission Revival style, with some Art Deco detailing on the towers. The property contains three (3) distinct sections: an older building constructed in 1923 and used by Foster & Kleiser for manufacturing billboards; and a garage plus an office building constructed in 1930. The office facade fronts on Magnolia Street and has an asymmetrically placed arched doorway with molded arch inset in a rectangular frame. The recessed door is the original one, wood with glass center, sidelights and transom window. Tall double-hung wood sash multipaned windows pierce the stucco facade, two (2) on one side of the door, three (3) on the other. The dominant architectural feature is the paired corner Mission Revival towers, with round copper domes (now painted). A strap relief ornament placed under the domes is an upside-down Art Deco skyscraper or inverted stepped pattern. The interior contains approximately ten (10) offices which have their original wood compartment walls, constructed of finely detailed hardwood (now painted) and glass. The original wood doors with transom windows are still in place. The bathroom floor has colorful, detailed hexagonal tile. The interior is illuminated by metal frame wire glass vertical skylights with their original hardware. The rest of the office interior has been modernized. The brick masonry garage with wood bridge truss ceiling is used today for manufacturing, and has a dropped ceiling. The interior walls are painted brick and the windows are steel casement with wire glass. The exterior facade on Cowles Street is stuccoed; the facade facing the parking area is red

brick masonry with a dutch gable. The anchor bolts piercing the facade trace the arched outline of the truss ceiling. The 1923 manufacturing building has a stucco front on Cowles Street, but corrugated aluminum walls inside and on the wall facing the parking lot. The exterior of this building on Cowles has an asymmetrical curvilinear roofline at the corner and a false front with a horizontal roofline. Inside, there is a pitched roof, pierced by sky lights. The interior contains multiple wood vertical supports and wood horizontal beams originally fabricated for billboard manufacture. Both the garage and 1923 manufacturing building have large garage doors, modern steel ones on Cowles Street and older ones on the parking lot side. There is a vintage freestanding low billboard sign at the edge of the property facing southward bound traffic on Magnolia, a configuration common for 1920's billboards.

B. Rationale for Historic Landmark Designation. In accordance with the provisions of Section 2.63.050 of this Code, the City Council finds that the following reasons exist relative to the designation of the Foster & Kleiser Building constructed in 1923 and the Foster & Kleiser garage plus office building constructed in 1930 as historic landmarks:

1. The Foster & Kleiser Building and garage plus office building possess a significant character, interest or value attributable to the development, heritage or cultural characteristics of the City, the Southern California region, and the State of California. As the South Bay headquarters of a major industrial firm, Foster & Kleiser Outdoor Advertising, this property was an important factor in the economy of Long Beach. It signaled the importance of the City as a venue for the Foster & Kleiser market, along with other major cities on the West Coast. It is also symptomatic of the leading role that automobiles and auto-related infrastructure played in the development of Southern California. As streets, boulevards, highways and freeways were laid out and expanded, the commercial billboard was not far behind. The nation's "car culture" is primarily associated with Southern California, along with its various architectural artifacts, including the manufacture of billboard advertising. The Long Beach branch of Foster & Kleiser was acquired in 1922 by purchasing property from H. B. Whited. The construction of the Long Beach branch was supervised by Mr. George Kleiser personally, and opened in 1923. The office portion and garage were constructed in 1930 and established an architectural presence on Magnolia Avenue. The Foster & Kleiser firm remained at the location until 1962, when it was closed and consolidated by Metro Media with the Los Angeles branch. In 1964, another business, Power Conversion, Inc., an electronics firm, moved into the buildings. Reminders of the Foster & Kleiser legacy remain in the vintage billboard on Magnolia Street and in the interior of the older building on Cowles Street, with its framework for billboard manufacture. Today the complex of buildings continues in industrial use as a small manufacturing plant. The Foster & Kleiser company was very important to the economy of Southern California, nourished by the predominance of the automobile, boulevards and freeways, in the creation of a regional "car culture". In addition, the architect, Clarence Aldrich, was a prominent Long Beach architect, who also designed a Tudor Revival mansion at 4252 Country Club Drive in Long Beach in 1927 which has since been designated as a Long Beach historic landmark: The Dawson-Prey House.

2. The Foster & Kleiser buildings contain elements of design, detail, materials or craftsmanship which represent a significant innovation. Architecturally, the office portion of the complex is significant for its style, Mission Revival, which makes a late appearance in this building. The Mission Revival style was prevalent from approximately 1905 through 1915 and by 1930 had long been eclipsed. Thus, the building may be considered Mission Revival. The cascading stepped relief design on the towers, looking like an upside-down skyscraper, is an Art Deco reinterpretation of the Mission Revival strap ornament. The plain stucco walls and terra cotta roof are classic features of Spanish Colonial Revival designs which were prevalent in 1930. The building makes a dramatic architectural statement, unusual in a manufacturing district.

3. The Foster & Kleiser Building is associated with the life of a person or persons significant to the community, City, region or Nation. Mr. Walter Foster and Mr. George Kleiser were pioneering business entrepreneurs, who founded a small business in 1901 which expanded to a nationwide chain by 1929. Their accomplishment in creating a new business activity, which was perfectly suited to the times, was visionary. Mr. Kleiser served as President of the Outdoor Advertising Association of America from 1930-1935. During the Second World War, Foster & Kleiser manufactured defense material and assisted in the war effort, for which they were recognized in a Times Magazine article in 1944.

4. The Foster & Kleiser Building portrays the environment in an era of history characterized by a distinctive architectural style. The Mission Revival style of the office building is associated with the Southern California region, and was popular from approximately 1905 through 1915 as a vernacular style recalling the Southern California missions. Its revival in this building, constructed in 1930, is a more nostalgic and romantic evocation of California's past. Characteristic features are the use of stucco walls and red tile roof, simple doors and windows, and particularly the pair of Mission Revival towers at the corners, topped with a hemispherical dome. An Art Deco flavor is imparted to the towers with the inverted stepped relief forms which cascade from the domes, reflecting a 1930's esthetic.

5. The Foster & Kleiser buildings embody those distinguishing characteristics of an architectural type or engineering specimen. One portion of the property contains an industrial building where the billboards were manufactured. It is typical of its time and its function. A large rectangular "barn" with a gabled roof lit by skylights, it contains a system of interior posts and beams built as the scaffolding for billboard painting and manufacture.

6. The Foster & Kleiser buildings are part of or related to a distinctive area and should be developed or preserved according to a specific historical, cultural or architectural motif. The buildings are located in the industrial section of downtown Long Beach, and are part of its distinct identity. However, the buildings have a more impressive architectural presence than other industrial buildings surrounding it.

C. General Guidelines and Standards for Any Changes. The "Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings" prepared by the United States Secretary of the Interior (Revised, 1991), as amended, as well as the "Procedures for Administering the Certificate of Appropriateness" found in Section 2.63.070 of this Code are incorporated herein by this reference. The guidelines are to be used as standards for the Cultural Heritage Commission in making decisions about Certificates of Appropriateness as required by Chapter 2.63 of this Code. The guidelines are an aid to property owners and others formulating plans for new construction, for rehabilitation or alteration of an existing structure, and for site development. The goal of the Certificate of Appropriateness review is to retain and preserve all original architectural materials and design features; to encourage rehabilitation which restores original historic fabric rather than remodels; and to ensure architectural compatibility between new and old.

D. Standards and Guidelines.

1. Changes requiring a Certificate of Appropriateness from the Cultural Heritage Commission are as follows:

a. Alterations or additions to roof; change in roof materials.

b. Additions.

c. Alterations to structure including foundation.

d. Alterations to windows.

e. Changes to doors and doorways.

f. Changes to exterior materials or colors.

g. Changes to exterior walkways or driveways.

h. Alterations or addition to fencing.

2. The following guidelines shall be standards to guide property owners, architects, contractors and the Cultural Heritage Commission in reviewing proposed changes:

a. Additions shall be compatible in materials and design, and shall be subordinate in scale, to the existing building.

b. Important architectural features which define the character of the historic style shall not be removed or obscured. These include roofline, exterior cladding, historic wood sash windows on the facade or sides of the house, porch supports, original doors, and other original structural and decorative features. (Ord. C-7498 § 1, 1997)

16.52.1030 The Anna R. Brown Residence.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as a historic landmark in the City: The Anna R. Brown Residence, constructed in 1901 for Anna R. Brown, wife of Edward R. Brown. The Anna R. Brown Residence is located at 1205 East Ocean Boulevard.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified Section 2 of Ordinance No. C-7537. (Ord. C-7537 § 1, 1998)

16.52.1040 The Butler Residence.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as a historic landmark in the City: The Butler Residence, constructed in 1932 for Mrs. Minnie Butler. The Butler Residence is located at 251 Junipero Avenue.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified Section 2 of Ordinance No. C-7553. (Ord. C-7553 § 1, 1998)

16.52.1050 The Long Beach Unity Church.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as a historic landmark in the City: The Long Beach Unity Church, constructed in 1940. The Long Beach Unity Church is located at 935 East Broadway.

The complete location, description and reasons for historic landmark designation are uncodified section 2 of Ordinance No. C 7593. (Ord. C 7593 § 1, 1999)

16.52.1060 The Packard Motors Building.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as a historic landmark in the City: The Packard Motors Building which was constructed in 1926 and located at 205 East Anaheim Street, parcel #7269015016.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. C-7593. (Ord. C 7593 § 1, 1999)

16.52.1070 The American Legion Post #560 (Houghton Post).

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City: The American Legion Post #560 (Houghton Post). The American Legion Post #560 (Houghton Post) is located at 1215 East Fifty-Ninth Street, parcel #7123010023.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. C 7592. (Ord. C 7592 § 1, 1999)

16.52.1080 The Phillips House.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City: The Phillips House which was constructed in 1929 and is located at 5917 Lemon Avenue, parcel #7124022024.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. C 7612. (Ord. C 7612 § 1, 1999)

16.52.1090 The 1163 Appleton House.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City: The 1163 Appleton House which was constructed in 1895 and is located at 1163 Appleton Street, Long Beach.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. C 7672. (Ord. C 7672 § 1, 2000)

16.52.2000 The 1169-75 Appleton Street House.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City: The 1169-75 Appleton Street House which was constructed in 1913 and is located at 1169 75 Appleton Street in the City of Long Beach.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. C 7673. (Ord. C 7673 § 1, 2000)

16.52.2010 The Parsonage.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City: The Parsonage which was constructed in 1887 and is located at 640 Pacific Avenue, Long Beach.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. C 7679. (Ord. C 7679 § 1, 2000)

16.52.2020 The Esser House.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City: The Esser House constructed in 1929 and located at 1001 East First Street, Long Beach.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. C 7692. (Ord. C 7692 § 1, 2000)

16.52.2030 Sunnyside Cemetery.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following site as an historic landmark in the City: Sunnyside Cemetery, established in 1906, located at 1095 East Willow Street, Long Beach.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. C 7693. (Ord. C 7693 § 1, 2000)

16.52.2040 The Kelly House.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City: The Kelly House, located at 705 East Broadway, Long Beach.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. C 7704. (Ord. C 7704 § 1, 2000)

16.52.2050 The Alford House.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City: The Alford House constructed in 1922 and located at 333 Obispo Avenue, Long Beach.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. C 7771. (Ord. C 7771 § 1, 2001)

16.52.2060 The Cannon House.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City: The Cannon House constructed in 1910 and located at 332 West Thirty-First Street, Long Beach.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. C 7772. (Ord. C 7772 § 1, 2001)

16.52.2070 Seashell House.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City: Seashell House constructed in 1922 and located at 4325 East Sixth Street, Long Beach; APN 7241 001 019.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. C 7803. (Ord. C 7803 § 1, 2002)

16.52.2080 Crandell/Howard House.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City: Crandell/Howard House. Constructed in 1906-1907, the Crandell/Howard House is located at 5725 Corso di Napoli.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. C 7854. (Ord. C 7854 § 1, 2003)

16.52.2090 Kimpson/Nixon House.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as a historic landmark in the City: Kimpson/Nixon House. Constructed in 1940, the Kimpson/Nixon House is located at 380 Orlena Avenue.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. C-7855. (Ord. C-7855 § 1, 2003)

16.52.2100 Killingsworth Office Building.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as a historic landmark in the City: Killingsworth Office Building. The Killingsworth Office Building is located at 3833 Long Beach Boulevard.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. C-7891. (Ord. C-7891 § 1, 2003)

16.52.2110 Opdahl House.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as a historic landmark in the City: Opdahl House. The Opdahl House is located at 5576 Vesuvian Walk.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. C-7892. (Ord. C-7892 § 1, 2003)

16.52.2120 Annie Kinner House.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as a historic landmark in the City: Annie Kinner House. Constructed in 1895, the Annie Kinner House is located at 1612 East Seventh Street.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. C-7893. (Ord. C-7893 § 1, 2003)

16.52.2130 Ebell Club.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning

Commission, the City Council designates the following building as a historic landmark in the City: Ebell Club, 290 Cerritos Avenue.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. C-7917. (Ord. C-7917 § 1, 2004)

16.52.2140 Ebell Theater.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as a historic landmark in the City: Ebell Theater, 1100 East Third Street.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. C-7918. (Ord. C-7918 § 1, 2004)

16.52.2150 Tolbert House.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as a historic landmark in the City: Tolbert House located at 1105 Linden Avenue.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. C-7916. (Ord. C-7916 § 1, 2004)

16.52.2160 George′s 50′s Diner.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as a historic landmark in the City: George′s 50′s Diner, originally known as Grisinger′s Drive-In, 4390 Atlantic Avenue.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. C-7919. (Ord. C-7919 § 1, 2004)

16.52.2170 Delker House.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as a historic landmark in the City: Delker House, located at 153 East Twelfth Street.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. 05-0005. (Ord. 05-0005 § 1, 2005)

16.52.2180 Espey/Lochridge House.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission, the City Council designates the following building as an historic landmark in the City: Espey/Lochridge House, located at 302 Orizaba Avenue.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. ORD-07-0040. (ORD-07-0040 § 1, 2007)

16.52.2190 Palace Hotel.

A. Pursuant to the provisions of Chapter 2.63 and with the recommendation of the Planning Commission and the Cultural Heritage Commission, the City Council designates the following building as an historic landmark in the City: Palace Hotel, located at 2640-44 East Anaheim Street.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified section 2 of Ordinance No. ORD-09-0007. (ORD-09-0007, § 1, 2009)

16.52.2200 Alamitos Neighborhood Library.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the recommendation of the Cultural Heritage Commission, the City Council designates the following building as a historic landmark in the City: Alamitos Neighborhood Library, located at 1836 East Third Street.

B. The complete location, description and reasons for historic landmark designation are more fully contained in uncodified Section 2 of Ordi-

nance No. ORD-16-0005. (ORD-16-0005 § 1, 2016)

16.52.2210 260 East San Antonio Drive.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the March 14, 2016 recommendation of the Cultural Heritage Commission, the City Council designates the following property as a Long Beach local historic landmark: 260 East San Antonio Drive.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-16-0117, which shall be recorded pursuant to Public Resources Code 5029, government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-16-0029 § 1, 2016; ORD-16-0012 § 1, 2016)

16.52.2220 6509 Gundry Avenue.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the April 11, 2016 recommendation of the Cultural Heritage Commission, the City Council designates the following property as a Long Beach local historic landmark: 6509 Gundry Avenue.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-16-0118, which shall be recorded pursuant to Public Resources Code 5029, government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-16-0030 § 1, 2016; ORD-16-0013 § 1, 2016)

16.52.2230 501 East Broadway.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the June 12, 2017 recommendation of the Cultural Heritage Commission, the City Council designates the following building as a Long Beach local historic landmark: 501 East Broadway.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-17-0076, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-17-0013 § 1, 2017)

16.52.2240 909-915 Elm Avenue.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the June 12, 2017 recommendation of the Cultural Heritage Commission, the City Council designates the following property as a Long Beach local historic landmark: 909-915 Elm Avenue.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-17-0077, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-17-0014 § 1, 2017)

16.52.2250 287 Granada Avenue.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the June 12, 2017 recommendation of the Cultural Heritage Commission, the City Council designates the following building as a Long Beach local historic landmark: 287 Granada Avenue.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-17-0078, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-17-0015 § 1, 2017)

16.52.2260 355 Junipero Avenue.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the June 12, 2017 recommendation of the Cultural Heritage Commission, the City Council designates the following building as a Long Beach local historic landmark: 355 Junipero Avenue.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-17-0079, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section

27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-17-0016 § 1, 2017)

16.52.2270 362 Junipero Avenue.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the June 12, 2017 recommendation of the Cultural Heritage Commission, the City Council designates the following property as a Long Beach local historic landmark: 362 Junipero Avenue.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-17-0080, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-17-0017 § 1, 2017)

16.52.2280 The Fly DC Jets Sign.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the August 8, 2016 recommendation of the Cultural Heritage Commission, the City Council designates the following object as a Long Beach local historic landmark: The Fly DC Jets Sign. The Fly DC Jets Sign is located at 3860 N. Lakewood Boulevard; however, the landmark designation applies to the sign only, not the property or building on which it is located.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-18-0038, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-18-0005 § 1, 2018)

16.52.2290 The VIP Records Sign.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the November 13, 2017 recommendation of the Cultural Heritage Commission, the City Council designates the following object as a Long Beach local historic landmark: The VIP Records Sign. The landmark designation applies to the sign only, not the property or building in which it is located.

B. The description and reasons for historic landmark designation are more fully contained in uncodified Section 2 of Ordinance No. ORD-18-0006. (ORD-18-0006 § 1, 2018)

16.52.2300 Grant Neighborhood Historic Landmark District.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code, and with the December 10, 2018 recommendation of the Cultural Heritage Commission, the City Council designates the following properties on the 6000 Block of Walnut Avenue as comprising a Long Beach local Historic Landmark District: the properties located on the 6000 block of Walnut Avenue, bounded by 61st Street to the north and 60th Street to the south, specifically addressed as 6001, 6002, 6012, 6017, 6018, 6023, 6024, 6029, 6030, 6037, 6038, 6043, 6044, 6049, 6050, 6055, 6056, 6067 and 6068 Walnut Avenue.

B. The complete location, description and reasons for historic landmark designation are more fully set forth in Resolution No. RES-19-0153, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2, and Chapter 2.63 of the Long Beach Municipal Code. (ORD-19-0023 § 1, 2019)

16.52.2310 Ferguson House.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code, and with the December 10, 2018 recommendation of the Cultural Heritage Commission, the City Council designates the Ferguson House located at 1500 East 1st Street as a Long Beach local Historic Landmark.

B. The complete location, legal description and reasons for Historic Landmark designation are more fully contained in Resolution No. RES-19-0154, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2, and Chapter 2.63 of the Long Beach Municipal Code. (ORD-19-0024 § 1, 2019)

16.52.2320 Alexander House.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the

July 8, 2019 recommendation of the Cultural Heritage Commission, the City Council designates the Alexander House as a Long Beach local historic landmark located at 5281 E. El Roble Street.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-19-0155, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-19-0025 § 1, 2019)

16.52.2330 Petersen House.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the July 8, 2019 recommendation of the Cultural Heritage Commission, the City Council designates the Petersen House as a Long Beach local historic landmark located at 3735 Pine Avenue.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-19-0157, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-19-0027 § 1, 2019)

16.52.2340 Bowyer Residence.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code, and with the July 8, 2019 recommendation of the Cultural Heritage Commission, the City Council designates the Bowyer Residence located at 3200 East 1st Street as a Long Beach local Historic Landmark.

B. The complete location, legal description and reasons for Historic Landmark designation are more fully contained in Resolution No. RES-19-0156, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2, and Chapter 2.63 of the Long Beach Municipal Code. (ORD-19-0026 § 1, 2019)

16.52.2350 Charles A. Buffum House.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the February 25, 2020 recommendation of the Cultural Heritage Commission, the City Council designates the Charles A. Buffum House as a Long Beach local historic landmark located at 1005 Locust Avenue.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-20-0105, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-20-0035 § 1, 2020)

16.52.2360 W.L. Porterfield Duplex.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the February 25, 2020 recommendation of the Cultural Heritage Commission, the City Council designates the W.L. Porterfield Duplex as a Long Beach local historic landmark located at 141 and 143 E. 10th Street.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-20-0106, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-20-0036 § 1, 2020)

16.52.2370 The Brady House.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the September 29, 2020 recommendation of the Cultural Heritage Commission, the City Council designates the Brady House located at 4204 Cedar Avenue as a Long Beach local historic landmark.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-20-0165, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-20-0052 § 1, 2020)

16.52.2380 The Miner Smith Bungalow Mansion (1921).

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the

September 29, 2020 recommendation of the Cultural Heritage Commission, the City Council designates the Miner Smith Bungalow Mansion (1921) located at 244 Mira Mar Avenue as a Long Beach local historic landmark.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-20-0164, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-20-0051 § 1, 2020)

16.52.2390 The Miner Smith Bungalow Mansion (1920).

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the September 29, 2020 recommendation of the Cultural Heritage Commission, the City Council designates the Miner Smith Bungalow Mansion (1920) located at 262 Newport Avenue as a Long Beach local historic landmark.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-20-0163, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-20-0050 § 1, 2020)

16.52.2400 Berg Office Building.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the April 25, 2023 recommendation of the Cultural Heritage Commission, the City Council designates the Berg Office Building located at 822 W. Willow Street as a Long Beach local historic landmark.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-23-0159, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-23-0038 § 1, 2023)

16.52.2410 F.W. Rehbock House.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the May 30, 2023 recommendation of the Cultural Heritage Commission, the City Council designates the F.W. Rehbock House located at 3305 E. 1st Street as a Long Beach local historic landmark.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-23-0160, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-23-0039 § 1, 2023)

16.52.2420 Mr. and Mrs. Maury Frank House.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the May 30, 2023 recommendation of the Cultural Heritage Commission, the City Council designates the Mr. and Mrs. Maury Frank House located at 4004 Country Club Drive as a Long Beach local historic landmark.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-23-0161, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-23-0040 § 1, 2023)

16.52.2430 McMullen House.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the August 13, 2018 recommendation of the Cultural Heritage Commission, the City Council designates the McMullen House located at 645 West 11th Street as a Long Beach local historic landmark.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-23-0162, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Mu-

nicipal Code. (ORD-23-0041 § 1, 2023)

16.52.2440 Royal Hotel Building.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the August 13, 2018 recommendation of the Cultural Heritage Commission, the City Council designates the Royal Hotel Building located at 622-628 E. Anaheim Street as a Long Beach local historic landmark.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-23-0163, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-23-0042 § 1, 2023)

16.52.2450 Craig House.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the August 13, 2018 recommendation of the Cultural Heritage Commission, the City Council designates the Craig House located at 953 Chestnut Avenue as a Long Beach local historic landmark.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-23-0164, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-23-0043 § 1, 2023)

16.52.2460 Lily Fremont House.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the August 13, 2018 recommendation of the Cultural Heritage Commission, the City Council designates the Lily Fremont House located at 338 Junipero Avenue as a Long Beach local historic landmark.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-23-0165, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-23-0044 § 1, 2023)

16.52.2470 Lovett O'Brien House.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the August 13, 2018 recommendation of the Cultural Heritage Commission, the City Council designates the Lovett O'Brien House located at 1400 Hellman Street as a Long Beach local historic landmark.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-23-0166, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-23-0045 § 1, 2023)

16.52.2480 Powell House.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the August 13, 2018 recommendation of the Cultural Heritage Commission, the City Council designates the Powell House located at 830 Santiago Avenue as a Long Beach local historic landmark.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-23-0167, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-23-0046 § 1, 2023)

16.52.2490 Bratsalis House.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the August 13, 2018 recommendation of the Cultural Heritage Commission, the City Council designates the Bratsalis House located at 151 St. Joseph Avenue as a Long Beach local historic landmark.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-23-0168, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section

27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-23-0047 § 1, 2023)

16.52.2500 Former Fire Station No. 9.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the November 28, 2023 recommendation of the Cultural Heritage Commission, the City Council designates the Former Fire Station No. 9 located at 3917 Long Beach Boulevard as a Long Beach local historic landmark.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-24-0022, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-24-0005 § 1, 2024)

16.52.2510 Frank House.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the July 30, 2024 recommendation of the Cultural Heritage Commission, the City Council designates the Frank House located at 82 Rivo Alto Canal as a Long Beach local historic landmark.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-24-0170, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-24-0021 § 1, 2024)

16.52.2520 Dr. Paul and Dorothy Harstein House.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the July 30, 2024 recommendation of the Cultural Heritage Commission, the City Council designates the Dr. Paul and Dorothy Harstein House located at 4210 California Avenue as a Long Beach local historic landmark.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-24-0171, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-24-0022 § 1, 2024)

16.52.2530 20th Century House.

Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the July 30, 2024 recommendation of the Cultural Heritage Commission, the City Council designates the 20th Century House located at 4401 Myrtle Avenue as a Long Beach local historic landmark.

The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-24-0172, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-24-0023 § 1, 2024)

16.52.2540 The Press-Telegram Model Home.

A. Pursuant to the provisions of Chapter 2.63 of the Long Beach Municipal Code and with the July 29, 2025 recommendation of the Cultural Heritage Commission, the City Council designates The Press Telegram Model Home located at 149 Siena Drive as a Long Beach local historic landmark.

B. The complete location, legal description and reasons for historic landmark designation are more fully contained in Resolution No. RES-25-0157, which shall be recorded pursuant to Public Resources Code 5029, Government Code Section 27288.2 and Chapter 2.63 of the Long Beach Municipal Code. (ORD-25-0020 § 1, 2025)

CHAPTER 16.54 SHORELINE PARK RECREATIONAL VEHICLE AREA

16.54.010 Purpose.

The purpose of this Chapter is to set forth provisions of general applicability pertaining to the use and occupancy of the Shoreline Park recreational vehicle area which is held, administered and operated by the City as a tideland asset in accordance with the tideland trust established,

created and defined by the legislative grants from the State in Chapter 676, Statutes of 1911, Chapter 102, Statutes of 1925, Chapter 158, Statutes of 1935, and the provisions of Chapter 29, Statutes of 1956, first extraordinary session, and Chapter 138, Statutes of 1964, first extraordinary session. (Ord. C-5948 § 1, 1983)

16.54.020 Definitions.

As used in this Chapter:

A. "City Manager" is the City Manager of the City of Long Beach.

B. "Manager" is the Manager of the Marine Bureau of the City of Long Beach.

C. "Park" means the Shoreline Park recreational vehicle area located at 200 West Shoreline Drive and situated on those portions of the tidelands area at the western end of Shoreline Park bounded by Shoreline Drive on the north, Shoreline Drive access road on the east, Queens Way Bay on the south, and Queens Way Bridge and Magnolia Avenue on the west.

D. "Permit" is the written permission to use a recreational vehicle site or parking space within the Shoreline Park recreational vehicle area.

E. "Person" means and includes any individual, partnership, corporation, organization, association, federal, State and local governmental entity or political subdivision or agency thereof.

F. "Recreational vehicle" means and includes camp trailers, campers, trailers, and trailer coaches as defined in Sections 242, 243, 630 and 635 respectively of the California Vehicle Code, and any other vehicle which has been modified, altered or converted to accommodate human habitation or human occupancy. (Ord. C-5948 § 1 (part), 1983)

16.54.030 Manager's duties.

The Manager shall supervise, manage and administer the operations of the park and issue all permits for the use and occupancy of recreational vehicle sites and parking spaces therein. (Ord. C-5948 § 1 (part), 1983)

16.54.040 Permit required.

No person shall use, park or occupy any recreational vehicle site or parking space within the park without first having obtained a permit from the Manager and paying the prescribed fee therefor. (Ord. C-5948 § 1 (part), 1983)

16.54.050 Alcoholic beverages.

Notwithstanding the provisions of Section 9.22.010, persons over the age of twenty-one (21) years using, parking at or occupying a recreational vehicle site or parking space within the park under a permit issued by the Manager may transport into the park and drink or consume alcoholic beverages at the assigned recreational vehicle site. (Ord. C-5948 § 1 (part), 1983)

16.54.060 Rules and regulations.

The City Council may adopt, repeal, amend and modify regulations establishing the rates, fees and charges imposed by this Chapter and regulating the activities and operations within the park. Upon adoption, repeal, amendment or modification of the regulations by the City Council, the regulations shall be filed in the office of the City Clerk and posted in a conspicuous place or places within the park. Any person who violates any provision of this Chapter or any regulation adopted pursuant to this Section shall be subject to the penalties provided for in Section 1.32.010. As to any person who is a permittee under the provisions of this Chapter, any violation of any such regulation, in addition to the penalties applicable to persons generally, shall be cause for revocation and cancellation of the person's permit. (Ord. C-5948 § 1 (part), 1983)

CHAPTER 16.55 ADVERTISING ON PUBLIC PROPERTY AND FACILITIES

16.55.010 Definitions.

The words and phrases defined in this Section, wherever used in this Chapter, shall have the meanings indicated unless the context requires a different meaning:

A. "Advertise", and any of its variants, and "advertising display" mean the depiction or presentation on a sign, personal property, bench, fixed device or structure of any name, word, statement, message, drawing, picture, painting, mark, motto, symbol or figure for the purpose of calling attention to a business, trade, organization or activity and/or inducing directly or indirectly, the purchase or use of any specific item of commerce or trade.

B. "Donor recognition program" and any of its variants means contributions of money, equipment, facilities, materials or other goods or services or other consideration in exchange for public recognition in a form and manner determined by the City.

C. "City's advertising policy" means that certain policy on City sponsorship, corporate recognition and advertising, adopted on July 23, 1996, as amended from time to time. (Ord. C-7429 § 1, 1996)

16.55.020 Advertising/recognition agreements.

A. The City may enter into contracts, permits, licenses and agreements with private individuals or organizations to provide advertising space or donor recognition on City-owned real and personal property as may be designated in the City's advertising policy, in exchange for cash, equipment, supplies, services or other valuable consideration.

B. Any contract, permit, license or agreement entered into pursuant to this Chapter shall be in conformity with, and subject to, any limitation imposed by the laws and regulations of the State of California including, but not limited to, the California Environmental Quality Act ("CEQA"), the California Vehicle Code, the City's General Plan, the California Outdoor Advertising Act, applicable zoning laws and regulations and the City's advertising policy.

C. The type, location, size, content and duration of any advertising, advertising display, or donor recognition shall be subject to approval by the City to the extent permitted by law and shall be specified in the contract, permit, license or agreement.

D. Except as permitted herein, no advertising, advertising display or donor recognition shall be permitted on public property or public facilities. (Ord. C-7429 § 1, 1996)

16.55.030 Restrictions.

A. No advertising, advertising display or donor recognition shall contain any reference to or depiction of any of the following:

1. The "specified anatomical areas" or "specified sexual activities" as defined in Section 21.15.110;

2. Any obscene act, gesture or word;

3. Any sale or use of alcohol or tobacco products; and

4. Any sale or use of illegal drugs or paraphernalia.

B. No contract, permit, license or agreement, may permit the logo or seal of the City of Long Beach or any of its departments to be reproduced or distributed in any manner which in any way impersonates a City official, safety officer or employee.

C. No advertising, advertising display or donor recognition shall be permitted on uniforms worn by safety officers, Park Rangers or City security officers.

D. No contract, permit, license or agreement shall permit an advertisement or advertising display to give the appearance or impression that any commercial product or service is endorsed or recommended by the City or any of its agencies, departments, officers or employees.

E. No advertisement, advertising display, or donor recognition shall display the word "stop", "drive", "danger", or any other word, phrase, symbol, lighting or any devices or any components thereof, or character likely to interfere with or mislead pedestrian or vehicular traffic. (Ord. C-7429 § 1, 1996)

CHAPTER 16.58 LABOR PEACE AGREEMENTS FOR THE AIRPORT AND THE LONG BEACH CONVENTION CENTER

16.58.010 Purpose and intent.

A. The City of Long Beach has a financial and proprietary interest in operations that have food and beverage concessions at the Long Beach Airport and the Long Beach Convention Center, since these operations base their concession payments to the City in part on the revenue they generate. Therefore, it is essential that these operations conduct business efficiently and without interruption or boycotts. The City has found that the efficient and uninterrupted operation of concession operations at the Airport and the Convention Center may be threatened by labor disputes. The City's investment in these operations must be shielded from any impact that labor disputes may have on the revenue of these concession operations. The City has further found that the City can only protect its investment by requiring its concessionaires to sign "labor peace agreements" with the labor organizations that represent or are seeking to represent employees in the concession industry. These agreements will prohibit the labor organizations and their members from engaging in picketing, work stoppages, boycotts or other economic interference with the business of the concession operators, for the duration of their concession agreements with the City.

B. This Chapter is not intended to conflict with federal or State law. It is the intention of the City Council that this Chapter be interpreted to be compatible with federal and State enactments and in furtherance of the public purposes which those enactments encompass. (ORD-13-0030, § 1, 2013)

16.58.020 Definitions.

A. "City" means the City of Long Beach.

B. "City Council" means the City Council of the City of Long Beach.

C. "Concession Contract" means any contract from the City covering Concession Operations at the Long Beach Airport and the Long Beach Convention Center.

D. "Concession Contract Amendment" means only an amendment that is required to be separately approved by the City Council and that:

1. extends the term of an existing contract for a period of more than one (1) year (the aggregate limit or maximum total of time that a contract may be extended without being deemed a "Concession Contract Amendment" is not to exceed one (1) year); or

2. approves a reduction in any concession payments to the City for the then existing tenant/operator.

E. "Concession Operations" means the general business operations of food and beverage concessions at the Long Beach Airport and the Long Beach Convention Center, but do not include the provision by an airline of food or beverage to passengers while on board an airplane.

F. "Concession Workers" means all full-time and part-time employees in a Concession Operation, except supervisors and managers.

G. "Concessionaire" means all food and beverage concession contractors together with all tenants, lessees, subtenants, sublessees, subcontractors, successors and assigns of such contractors that provide such concession services at the Long Beach Airport and the Long Beach Convention Center where concession payments to the City depend in any part on the volume of revenue from such services.

H. "Labor Organization" means an organization of any kind, or an agency or employer representation committee or plan, in which employees participate and which exists for the purpose, in whole or in part, of dealing with employers concerning grievances, labor disputes, wages, rates of pay, hours of employment, or conditions of work.

I. "No-Strike Pledge" means a provision in a labor peace agreement prohibiting the Labor Organization and its members from engaging in picketing, work stoppages, boycotts or any other economic interference with the business of Concessionaire at the Long Beach Airport and the Long Beach Convention Center for the duration of the Concession Contract term. (ORD-13-0030, § 1, 2013)

16.58.030 No-Strike Pledge requirement for Concession Operations.

Prior to the execution of any new Concession Contract or Concession Contract Amendment with a Concessionaire, and as a condition precedent to such execution by the City, the Concessionaire shall have: (i) signed a labor peace agreement with each Labor Organization seeking to represent Concession Workers at the premises covered by the Concession Contract, and (ii) submitted to the City a copy of such labor peace agreement, executed by all of the parties. Each labor peace agreement must contain a No-Strike Pledge. (ORD-13-0030, § 1, 2013)

16.58.040 Posting requirements.

Each Concessionaire shall cause the No-Strike Pledge requirement under this Chapter to be posted at its place of business in the Airport or Long Beach Convention Center, so as to be conspicuous to the general public and to patrons entering or using such facilities. (ORD-13-0030, § 1, 2013)

16.58.050 Limitations.

A. Nothing in this Chapter requires a Concessionaire already be unionized at the time it seeks a contract with the City, nor requires a Concessionaire recognize a particular Labor Organization, nor mandates employees choose to unionize.

B. Nothing in this Chapter requires a Concessionaire make any particular promise in order to secure a labor peace agreement: that is left by the City up to the contracting parties to negotiate.

C. This Chapter is not intended to, and shall not be interpreted to, enact or express any generally applicable policy regarding labor-management relations or to regulate those relations in any way.

D. This Chapter is not intended to favor any particular outcome in the determination of employee preference regarding union representation.

E. Nothing in this Chapter permits or requires the City or any Concessionaire to enter into any agreement in violation of the National Labor Relations Act of 1935, approved July 5, 1935 (49 Stat. 449; 29 U.S.C.S. § 151 et seq.). (ORD-13-0030, § 1, 2013)

16.58.060 Severability.

If any provision of this Chapter, or the application thereof to any person or circumstance, is held invalid, that invalidity shall not affect any other provision or application of this Chapter that

can be given effect without the invalid provision or application; and to this end, the provisions or applications of this Chapter are severable. (ORD-13-0030, § 1, 2013)

CHAPTER 16.59 WORKER RETENTION AT THE AIRPORT AND THE LONG BEACH CONVENTION CENTER

16.59.010 Findings and purpose.

A. The City Council finds that the prospect of massive displacement of the large existing workforces at food and beverage concessions at the Long Beach Airport and Long Beach Convention Center would likely cause severe injury to the City's economy and impose significant burdens upon society such as welfare and public health expenses and security risks at such facilities. The City Council finds this policy is the only realistic means of preventing such displacement.

B. The City Council finds that the regulation of worker retention at food and beverage concessions should proceed initially only at the Airport and Convention Center due to factors unique to the businesses at such facilities, including their superior location and ability to pay thanks to large City investments and City policies limiting access to such facilities for competitors, the competency of their existing workforces (including their security clearances and demonstrated record in preserving Airport security), the greater likelihood of mass displacement at these workplaces compared to most others within the City (especially given the large number of persons capable of taking these jobs), and the negative impact on City revenues should new employers refuse to rehire existing workers and thereby spur boycott activities by displaced workers and their organizations.

C. The City Council wishes to fully assess economic and social impacts of regulating these businesses initially before including any other businesses, and thus to proceed in a fully-informed incremental manner.

D. The purpose of establishing worker retention requirements at the Airport and Convention Center is to decrease worker turnover and instability in the workplace. The consequential benefits of such measures are the improvement of the quality of service to the City, the traveling public, and other users of the Airport and Convention Center.

E. This Chapter is not intended to conflict with federal or State law. It is the intention of the City Council that this Chapter be interpreted to be compatible with federal and State enactments and in furtherance of the public purposes which those enactments encompass. (ORD-13-0031, § 1, 2013)

16.59.020 Definitions.

A. "City" means the City of Long Beach.

B. "City Council" means the City Council of the City of Long Beach.

C. "Concession Contract" means any contract from the City covering Concession Operations at the Long Beach Airport or the Long Beach Convention Center.

D. "Concession Operations" means the general business operations of food and beverage concessions at the Long Beach Airport and the Long Beach Convention Center, but do not include the provision by an airline of food or beverage to passengers while on board an airplane.

E. "Concessionaire" means all food and beverage concessions contractors together with all tenants, lessees, subtenants, sublessees, subcontractors, successors and assigns of such contractors that provide such concession services at the Long Beach Airport or the Long Beach Convention Center.

F. "Predecessor Employer" means the Concessionaire at the Long Beach Airport or Long Beach Convention Center that employed Retention Workers to provide substantially similar services for a Concession Operation immediately prior to the Successor Employer.

G. "Retention Workers" means all full-time and part-time employees in a Concession Operation, except supervisors and managers.

H. "Successor Employer" means the new Concessionaire at the Long Beach Airport or Long Beach Convention Center business that succeeds

the Predecessor Employer in the provision of substantially similar Concession Operations. (ORD-13-0031, § 1, 2013)

16.59.030 Worker retention.

A. A Successor Employer shall fill its Concession Operations positions at the Long Beach Airport and the Long Beach Convention Center by first hiring from the workforce which has been or is being displaced by the departure or reduction in force of a Predecessor Employer at such location, and shall retain and not discharge a Retention Worker without cause during the initial ninety (90) work day period of his or her employment. Just cause for discharge shall not include the reason being a Retention Worker receiving superior wages or benefits in their prior positions.

B. In the event that the Successor Employer does not have enough positions available for all Retention Workers, the Successor Employer shall hire the Retention Workers who are eligible for retention by seniority within each employment classification. For any positions that become available during the initial one (1) calendar year period of the new Concession Contract, the Successor Employer will hire Retention Workers by seniority within each employment classification.

C. A Successor Employer shall offer continued employment to each Retention Worker who receives a satisfactory performance evaluation at the end of the initial ninety (90) work day period of employment under terms and conditions established by the Successor Employer for all its employees. (ORD-13-0031, § 1, 2013)

16.59.040 Posting and recordkeeping requirement.

A. Each Concessionaire shall cause the Worker Retention requirements under this Chapter to be posted at its place of business in the Airport or Long Beach Convention Center, so as to be conspicuous to the general public, to patrons entering or using such facilities, and to the Retention Workers employed at such facilities.

B. Each Successor Employer shall maintain records for three (3) years showing the reasons for not hiring or for discharging Retention Workers during the initial ninety (90) work day period. The City Manager and each Retention Worker and their designees are authorized to review these records upon reasonable request to ascertain compliance with this Chapter. (ORD-13-0031, § 1, 2013)

16.59.050 Waiver.

The provisions of this Chapter may not be waived by agreement between an individual Retention Worker and Predecessor or Successor Employer. All of the provisions of this Chapter, or any part hereof, may be waived in a bona fide collective bargaining agreement, but only if the waiver is explicitly set forth in such agreement in clear and unambiguous terms. Unilateral implementation of terms and conditions of employment by either party to a collective bargaining relationship shall not constitute, or be permitted, as a waiver of all or any part of the provisions of this Chapter. (ORD-13-0031, § 1, 2013)

16.59.060 Retaliation.

No person shall discharge, reduce any part of the compensation of, nor discriminate against any Retention Worker due to the enactment of this Chapter or due to his or her assertion of any rights under this Chapter. (ORD-13-0031, § 1, 2013)

16.59.070 Enforcement.

A. The City Manager or his/her designee is invested with the discretionary authority to issue additional rules and regulations interpreting this Chapter and/or establishing complaint procedures related to enforcement of this Chapter. Notwithstanding the foregoing, the City shall be under no duty to monitor compliance with this Chapter; however, the City may consider compliance with this Chapter in making contracting decisions.

B. Any violation of this Chapter may be subject to injunctive relief and any other relief or remedy available at law or equity. (ORD-13-0031, § 1, 2013)

16.59.080 Severability.

If any provision of this Chapter, or the application thereof to any person or circumstance, is held invalid, that invalidity shall not affect any other provision or application of this Chapter that can be given effect without the invalid provision or application; and to this end, the provisions or applications of this Chapter are severable. (ORD-13-0031, § 1, 2013)

CHAPTER 16.60 PAYMENT OF LIVING WAGE TO WORKERS AT THE LONG BEACH AIRPORT, CONVENTION CENTER, AND TEMPORARY AMPHITHEATER

16.60.010 Purpose.

The purpose of this Chapter is to protect the public health, safety and welfare by requiring that public funds be expended in such a manner as to facilitate individual self-reliance by employees of food, beverage and retail concessionaires at the Long Beach Airport, the Long Beach Convention Center, and the Long Beach Temporary Amphitheater. (ORD-25-0008 § 1, 2025; ORD-14-0002, § 1, 2014)

16.60.020 Definitions.

A. "City" means the City of Long Beach.

B. "Compensation" includes any wages, tips, bonuses, and other payments reported as taxable income paid by a Concessionaire to a Concession Worker.

C. "Concession Contract" means any contract from the City covering Concession Operations at the Long Beach Airport, the Long Beach Convention Center, and the Long Beach Temporary Amphitheater.

D. "Concession Contract Amendment" means only an amendment that is required to be separately approved by the City Council and that:

1. extends the term of an existing contract for a period of more than one (1) year (the aggregate limit or maximum total of time that a contract may be extended without being deemed a "Concession Contract Amendment" is not to exceed one (1) year); or

2. approves a reduction in any concession payments to the City for the then existing tenant/operator.

E. "Concession Operations" means the general business operations of food and beverage or retail concessions at the Long Beach Airport, the Long Beach Convention Center, and the Long Beach Temporary Amphitheater, but do not include the provision by an airline of food or beverage to passengers while on board an airplane.

F. "Concession Workers" means all full-time and part-time employees in a Concession Operation.

G. "Concessionaire" means all food and beverage or retail concessions contractors together with all tenants, lessees, subtenants, sublessees, subcontractors, successors and assigns of such contractors that provide such concession services at the Long Beach Airport, the Long Beach Convention Center, or the Long Beach Temporary Amphitheater.

H. "Long Beach Temporary Amphitheater" or "Temporary Amphitheater" means the temporary amphitheater to be built by the City and located adjacent to the Queen Mary.

I. "Service charge" means all separately-designated amounts, regardless of name or label, that are charged and collected by a Concessionaire from customers, that is for service by employees, or is described in such a way that customers might reasonably believe that the amount is for those services or is otherwise to be paid or payable directly to employees or is used to pay for labor or worker protections, including those charges designated on receipts, invoices, or billing statements under the term "service charge," "table charge," "porterage charge," "automatic gratuity charge," "healthcare surcharge," "benefits surcharge," "worker protection fee," or similar language. Service charge does not include a tip or gratuity as defined under state or federal law, or taxes and fees levied by federal, State or local government. (ORD-25-0008 § 1, 2025; ORD-14-0002, § 1, 2014)

16.60.030 Concessionaires subject to the requirements of this Chapter.

Concessionaires at the Long Beach Airport, the Long Beach Convention Center, and the Long

Beach Temporary Amphitheater that enter into any new Concession Contract or Concession Contract Amendment with the City shall comply with the minimum compensation standards established by this Chapter. (ORD-25-0008 § 1, 2025; ORD-14-0002, § 1, 2014)

16.60.040 Payment of minimum compensation.

A. Each Concessionaire subject to this Chapter pursuant to Section 16.60.030 shall pay Concession Workers a wage of not less than the hourly rates set forth in this Section. The hourly rates shall be as follows:

1. On March 16, 2014, thirteen dollars and twenty-six cents ($13.26) per hour worked. This rate shall be adjusted by the amount of increases in the federal minimum wage over the amount in effect on December 31, 2013, or, if greater, by the cumulative increase in the cost of living.

2. On October 1, 2025, twenty-five dollars ($25.00) per hour.

3. On July 1, 2026, twenty-six dollars and fifty cents ($26.50) per hour.

4. On July 1, 2027, twenty-eight dollars ($28.00) per hour.

5. On July 1, 2028, twenty-nine dollars and fifty cents ($29.50) per hour.

The cost of living increase before October 1, 2025, shall be measured by the percentage increase as of December 31 in any year over the level as of December 31, 2013 of the Consumer Price Index (All Urban Consumers, Los Angeles-Riverside-Orange County) as published by the Bureau of Labor Statistics, U.S. Department of Labor or the successor index or federal agency. If in any calendar year there is no increase in the federal minimum wage and the increase in the Consumer Price Index is less than two percent (2%), then the rate shall be adjusted by an increase of two percent (2%). If in any calendar year there is no increase in the federal minimum wage and the increase in the Consumer Price Index is less than two percent (2%), then the rate shall be adjusted by an increase of two percent (2%).

Starting on July 1, 2029, the rate shall be adjusted by the amount of increases in the federal minimum wage over the amount in effect on December 31, 2028, or, if greater, by the cumulative increase in the cost of living. Annually thereafter, the cost-of-living increase shall be measured by the percentage increase as of December 31 in any year over the level as of December 31, 2028, of the Consumer Price Index (All Urban Consumers, Los Angeles-Riverside-Orange County).

The Mayor or the City agency designated by the Mayor shall publish a bulletin by April 1 of each year announcing the adjusted rates, which shall take effect the following July 1. Such bulletin will be made available to all Concessionaires and to any other person who has filed with the Mayor or the designated agency a request to receive such notice but lack of notice shall not excuse noncompliance with this Section. A Concessionaire shall provide written notification of the rate adjustments to each of its Concession Workers and make the necessary payroll adjustments by July 1 following the publication of the bulletin. Tips or gratuities received by Concession Workers and service charges or commissions shall not be credited as being any part of or offset against the wage rates required by this Section.

B. Service charges shall not be retained by a Concessionaire but shall be paid in the entirety by the Concessionaire to the Concession Worker(s) performing services for the customers from whom the service charges are collected. No part of these amounts may be paid to supervisory or managerial employees. The amounts shall be paid to the Concession Worker(s) equitably and according to the services that are or appear to be related to the description of the amounts given by the Concessionaire to the customers. The amounts shall be paid to the Concession Worker(s) in the next payroll following collection of an amount from the customer. The foregoing provisions do not apply to any tip, gratuity, money, or part of any tip, gratuity, or money that has been paid or given to or left for a Concession Worker by customers over and above the actual amount due for services rendered or for food or beverage sold or served to the

customer. (ORD-25-0008 § 1, 2025; ORD-14-0002, § 1, 2014)

16.60.050 Required contract provisions.

Every contract with a Concessionaire subject to this Chapter pursuant to Section 16.60.030 shall contain provisions requiring it to comply with the provisions of this Chapter as they exist on the date when the Concessionaire entered the contract with the City or when such contract is amended. (ORD-25-0008 § 1, 2025; ORD-14-0002, § 1, 2014)

16.60.060 Posting requirements.

Each Concessionaire shall cause the living wage requirement under this Chapter to be posted at its place of business in the Long Beach Airport, Convention Center, or Temporary Amphitheater so as to be conspicuous to the general public, to patrons entering or using such facilities, and to the Concession Workers employed at such facilities. (ORD-25-0008 § 1, 2025; ORD-14-0002, § 1, 2014)

16.60.070 Waiver.

The provisions of this Chapter may not be waived by agreement between an individual Concession Worker and a Concessionaire. All of the provisions of this Chapter, or any part hereof, may be waived in a bona fide collective bargaining agreement, but only if the waiver is explicitly set forth in such agreement in clear and unambiguous terms. Unilateral implementation of terms and conditions of employment by either party to a collective bargaining relationship shall not constitute, or be permitted, as a waiver of all or any part of the provisions of this Chapter. (ORD-25-0008 § 1, 2025; ORD-14-0002, § 1, 2014)

16.60.080 Retaliation.

No person shall discharge, reduce any part of the compensation of, nor discriminate against any Concession Worker due to the enactment of this Chapter or due to his or her assertion of any rights under this Chapter. (ORD-25-0008 § 1, 2025; ORD-14-0002, § 1, 2014)

16.60.090 Enforcement.

A Concession Worker claiming violation of this Chapter may bring an individual or class action against his or her employer in Superior Court to enforce the provisions of this Chapter and shall be entitled to all remedies available under the law or in equity appropriate to remedy any violation of this Chapter, including but not limited to lost compensation, damages, reinstatement or injunctive relief. A Concession Worker who prevails in any action to enforce this Chapter shall be awarded his or her reasonable attorney's fees and litigation expenses. Nothing herein shall be construed to preclude the City or others from obtaining the usual remedies for violations of contract, ordinance or anti-retaliation laws. Notwithstanding the foregoing, the City shall be under no duty to monitor compliance with this Chapter; however, the City may consider compliance with this Chapter in making contracting decisions. (ORD-25-0008 § 1, 2025; ORD-14-0002, § 1, 2014)

16.60.100 Severability.

If any provision of this Chapter, or the application thereof to any person or circumstance, is held invalid, that invalidity shall not affect any other provision or application of this Chapter that can be given effect without the invalid provision or application; and to this end, the provisions or applications of this Chapter are severable. (ORD-25-0008 § 1, 2025; ORD-14-0002, § 1, 2014)

Title 17

(RESERVED)

Title 18

LONG BEACH BUILDING STANDARDS CODE*

Chapter 18.01 General Provisions

18.01.010 Title.
18.01.020 Purpose.
18.01.030 Scope.
18.01.040 Work not in scope.
18.01.050 Referenced codes.
18.01.060 Applicability.

Chapter 18.02 Definitions

18.02.010 General.
18.02.020 Definitions.

Chapter 18.03 Administration and Enforcement

18.03.010 Department of Community Development.
18.03.020 Duties and powers of the Building Official.
18.03.030 Reports, records and fees.
18.03.040 Liability.
18.03.050 Modifications.
18.03.060 Alternate materials, design and methods of construction and equipment.

Chapter 18.04 Permits

18.04.010 Permits required.
18.04.020 Work exempt from permit.
18.04.030 Permit applications.
18.04.040 Permit issuance.
18.04.050 Validity of permit.
18.04.060 Expiration, suspension, revocation and transfer of permit.
18.04.070 Requirement and responsibility of permittee.

Chapter 18.05 Submittal Documents

18.05.010 General.
18.05.020 Number of construction documents.
18.05.030 Construction documents.

***Editor's note—**ORD-25-0019 § 1(Exh. A), adopted Nov. 11, 2025, amended Title 18 to read as herein set out. Former Title 18, Chs. 18.01—18.99, pertained to similar subject matter and as amended through ORD-25-0015 § 1, adopted Aug. 19, 2025. Where possible, the historical notation has been retained with the amended provisions for reference purposes. See Code Comparative Table for complete amendatory history.

18.05.040 Examination of construction documents.
18.05.050 Design professional in responsible charge.
18.05.060 Expiration of plan examination.
18.05.070 Retention and maintenance of construction documents.

Chapter 18.06 Fees

18.06.010 Permit fees.
18.06.020 Plans examination fees.
18.06.025 Determining valuation.
18.06.030 Plans re-examination fees.
18.06.040 Re-inspection fee.
18.06.050 Special inspection fee.
18.06.060 Fees for verification of reports.
18.06.070 Investigation fees—Work without a permit.
18.06.080 Code Enforcement Fees.
18.06.090 Construction document maintenance fee.
18.06.100 Board of Appeal fees.
18.06.110 Fee for verifying and reproducing permit records.
18.06.120 Processing fee for reproducing construction document records.
18.06.130 Oil and gas well record search.
18.06.140 Oil or gas well abandonment.
18.06.150 Service connection fee.
18.06.160 Code modification and alternate fees.
18.06.170 Transfer of permit fee.
18.06.180 Temporary Certificate of Occupancy fee.
18.06.190 Waiver of fees.
18.06.200 Refunds.

Chapter 18.07 Inspections

18.07.010 General.
18.07.020 Inspection record card.
18.07.030 Inspection requests.
18.07.040 Approvals required.
18.07.050 Required inspections.
18.07.060 Surveys.
18.07.070 Non-inspected work.
18.07.080 Special inspections.

Chapter 18.08 Certificate of Occupancy

18.08.010 Certificate required for use or occupancy.

18.08.020 Issuance of certificates.
18.08.030 Contents of certificate.
18.08.040 Temporary certificate.
18.08.050 Posting.
18.08.060 Revocation.

Chapter 18.09 Violations

18.09.010 General.
18.09.020 Notice of violation.
18.09.030 Prosecution of violation.
18.09.040 Violation penalties.
18.09.050 Violation for obtaining permit without owner's consent.
18.09.060 Making false statement.
18.09.070 Unpermitted structures.
18.09.080 Validity of approval.

Chapter 18.10 Board of Appeals

18.10.010 General regulations.
18.10.020 Board of Examiners, Appeals and Condemnation.
18.10.030 Advisory capacity.
18.10.040 Limitations on authority.
18.10.050 Compensation.

Chapter 18.11 Building Address and Number

18.11.010 Installation authority.
18.11.020 Baseline established.
18.11.030 Meridian line established.
18.11.040 Odd and even building numbers.
18.11.050 Notice to affix building numbers.
18.11.060 Changing building address.
18.11.070 Variance.

Chapter 18.15 Police Facilities Impact Fee

18.15.010 Legislative findings.
18.15.020 Purpose.
18.15.030 Definitions.
18.15.040 Fund established.
18.15.050 Police Facilities Impact Fee.
18.15.060 Fee imposed.

18.15.070 Calculation of Police Facilities Impact Fee.
18.15.080 Collection of Police Facilities Impact Fee.
18.15.090 Use of funds.
18.15.100 Refund.
18.15.110 Exemptions and credits.
18.15.120 Appeals.
18.15.130 Judicial review.
18.15.140 Annual report and amendment procedures.
18.15.150 Effect of Police Facilities Impact Fee on zoning and subdivision regulations.
18.15.160 Violation—Penalty.
18.15.170 Severability.

Chapter 18.16 Fire Facilities Impact Fee

18.16.010 Legislative findings.
18.16.020 Purpose.
18.16.030 Definitions.
18.16.040 Fund established.
18.16.050 Fire Facilities Impact Fee.
18.16.060 Fee imposed.
18.16.070 Calculation of Fire Facilities Impact Fee.
18.16.080 Collection of Fire Facilities Impact Fee.
18.16.090 Use of funds.
18.16.100 Refund.
18.16.110 Exemptions and credits.
18.16.120 Appeals.
18.16.130 Judicial review.
18.16.140 Annual report and amendment procedures.
18.16.150 Effect of Fire Facilities Impact Fee on zoning and subdivision regulations.
18.16.160 Violation—Penalty.
18.16.170 Severability.

Chapter 18.17 Transportation Improvement Fee

18.17.010 Short title.
18.17.020 Purpose.
18.17.030 Affected area—Designation of subareas.
18.17.040 Definitions.
18.17.050 Transportation Improvement Fee requirements—Imposition—Collection.
18.17.055 Transportation Demand Management Measure Requirements.
18.17.060 Amount of Transportation Improvement Fee.

18.17.070 Calculation of Transportation Improvement Fee.
18.17.080 Collection of Transportation Improvement Fee.
18.17.090 Establishment of Transportation Improvement Fee account.
18.17.100 Limitation on use of funds derived from Transportation Improvement Fees.
18.17.110 Credits.
18.17.120 Refunds.
18.17.130 Exemptions.
18.17.140 Accounting and audits.
18.17.150 Appeals.
18.17.160 Judicial review.
18.17.170 Annual report and amendment procedures.
18.17.180 Effect of Transportation Improvement Fee on zoning and subdivision regulations.
18.17.190 Transportation Improvement Fee as additional and supplemental requirement.

Chapter 18.18 Park and Recreation Facilities Fee

18.18.010 Short title.
18.18.020 Purpose.
18.18.030 Definitions.
18.18.040 Requirement.
18.18.050 Amount of Park Fee.
18.18.060 Calculation of applicable Park Fee.
18.18.070 Collection of Park Fee.
18.18.080 Establishment of Park Fee account.
18.18.090 Limitation on use of funds derived from Park Fees.
18.18.100 Credits.
18.18.110 Refunds.
18.18.120 Exemptions.
18.18.130 Audits.
18.18.140 Appeals.
18.18.150 Judicial review.
18.18.160 Amendment procedures.
18.18.170 Effect of Park Fee on zoning and subdivision regulations.
18.18.180 Park Fee as additional and supplemental requirement.

Chapter 18.19 Sensitive Coastal Resource Impact Fee

18.19.010 Legislative findings.
18.19.020 Purpose.
18.19.030 Definitions.
18.19.040 Fund established.

18.19.050 Sensitive Coastal Resource Impact Fee.
18.19.060 Fee imposed.
18.19.070 Calculation of Sensitive Coastal Resource Impact Fee.
18.19.080 Payment of fee.
18.19.090 Use of funds.
18.19.100 Refund.
18.19.110 Exemptions and credits.
18.19.120 Appeals.
18.19.130 Judicial review.
18.19.140 Reporting, Findings and amendment procedures.
18.19.150 Effect of Sensitive Coastal Resource Impact Fee on zoning and subdivision regulations.
18.19.160 Violation—Penalty.
18.19.170 Severability.

Chapter 18.20 Unsafe Buildings or Structures

18.20.010 Substandard buildings—Proceedings for repair.
18.20.020 Substandard buildings—Notice required.
18.20.030 Substandard buildings—Service of notice.
18.20.040 Substandard buildings—Order to vacate.
18.20.050 Substandard buildings—Vacating and reoccupying.
18.20.060 Substandard buildings—Posting of placard on vacated building.
18.20.070 Nonconforming buildings—Notice to comply or vacate.
18.20.080 Dangerous buildings or conditions—Correction proceedings.
18.20.090 Dangerous buildings or conditions—Inspection.
18.20.100 Dangerous buildings or conditions—Abatement proceedings.
18.20.110 Dangerous buildings or conditions—Summary abatement.
18.20.120 Inspection of buildings—Report.
18.20.130 Appeal to Board of Examiners, Appeals and Condemnation.
18.20.140 Reserved.
18.20.150 Demolition or repairs by City—Expense liability.
18.20.160 Service of notices and orders.
18.20.170 Extensions of time to perform work.
18.20.180 Owner's responsibility for enforcement costs.
18.20.190 Notice of enforcement costs.
18.20.200 Hearing on reasonableness of enforcement costs.
18.20.210 Interest on charges.
18.20.220 Transfer of collection.
18.20.230 Method of collection.

18.20.240 Tax-sold property.
18.20.250 Tax-sold property—Redemptions.
18.20.260 Error correction—Assessment cancellation.
18.20.270 Refunds.
18.20.280 Notice to secure structure.
18.20.290 Emergency hazard abatement.
18.20.300 Criminal prosecution.

Chapter 18.21 Maintenance of Long-Term Boarded and Vacated Buildings

18.21.010 Purposes and definitions.
18.21.020 Owner responsibilities.
18.21.030 Monitoring program—Purpose.
18.21.040 Monitoring program—Department responsibility and fees.
18.21.050 Civil remedy.

Chapter 18.24 Foreclosure Registry Program

18.24.010 Purpose.
18.24.020 Definitions.
18.24.030 Registration.
18.24.035 Penalty/fine for failure to timely register a property with the City.
18.24.040 Maintenance required.
18.24.050 Security requirements.
18.24.055 Special provisions where property is encumbered with the security interests of multiple beneficiaries.
18.24.060 Additional authority.
18.24.070 Enforcement.
18.24.080 Appeals.
18.24.090 Alternative monetary penalties.
18.24.100 Severability.

Chapter 18.25 Tenant Relocation and Code Enforcement

18.25.010 Purpose.
18.25.020 Findings.
18.25.030 Definitions.
18.25.040 Eligibility.
18.25.050 Order to vacate.
18.25.060 Notification of tenants and owners.
18.25.070 Issuance of permits.
18.25.080 Payment of relocation benefits.

18.25.090 Relocation eligibility and assistance by City.
18.25.100 Immediate vacation.
18.25.110 Amount of relocation payments.
18.25.120 Evictions to avoid payment of relocation assistance.
18.25.130 Move-back option.
18.25.140 Certificate of occupancy.
18.25.150 Appeals.
18.25.160 Penalty.
18.25.170 Private right of action.
18.25.180 Application to heirs.
18.25.190 Relationship to other laws.
18.25.200 Penalty fund.
18.25.210 Severability.

Chapter 18.29 Maintenance of Vacant Lots

18.29.060 Purpose.
18.29.070 Definitions.
18.29.080 General requirements for maintenance of vacant properties, lots, or parcels.
18.29.090 Non-compliance declared a nuisance.
18.29.100 Removal of Property from registry.

Chapter 18.30 Proactive Rental Housing Inspection Program

18.30.010 Findings and purpose.
18.30.020 Definitions.
18.30.030 Scope.
18.30.040 Proactive Rental Housing Inspection Program registration.
18.30.050 Proactive Rental Housing Inspection Program fees.
18.30.060 Penalty.
18.30.070 Appeal of late penalty.
18.30.080 Hearing procedure.
18.30.090 Board of Examiners, Appeals and Condemnation's decision.
18.30.100 Tenant rights and responsibilities.
18.30.110 Property owner contact representative.
18.30.120 Inspections.
18.30.130 Notice.
18.30.140 Refusal to permit inspections.
18.30.150 Change of ownership.
18.30.160 Annual review of program.
18.30.170 Regulations non-exclusive.

18.30.180 Alternative non-exclusive remedies.
18.30.190 Conflicts.

Chapter 18.40 Building Code

18.40.010 Adoption of California Building Code.
18.40.020 Amend CBC Section 201.4—Terms not defined.
18.40.040 Amend CBC Section 302.1—Occupancy classification.
18.40.050 Amend CBC 901.2—Fire protection systems.
18.40.060 Add CBC Section 901.8—Protection of fire protection systems and equipment.
18.40.070 Amend CBC Section 903.1—General.
18.40.080 Amend CBC Section 903.2—Where required.
18.40.085 Amend CBC Section 903.2.8—Group R.
18.40.090 Add CBC Section 903.3.5.3—Hydraulic calculations margin.
18.40.100 Add CBC Section 903.3.10.1—Control valve location.
18.40.110 Add CBC Section 903.4.2.1—Signal reporting.
18.40.120 Amend CBC Section 903.4.3—Alarms.
18.40.130 Add CBC Section 903.4.4—Remote annunciator.
18.40.140 Add CBC Section 905.1.1—Design.
18.40.150 Amend CBC Section 905.4 Subsection 1—Location of Class I standpipe hose connections.
18.40.160 Add CBC Sections 907.1.6 through 907.1.10—General.
18.40.170 Amend CBC Section 907.3.1 and Exception 2—Duct smoke detectors.
18.40.180 Add CBC Section 907.9—Fire alarm upgrade.
18.40.190 Add CBC Section 907.10—Smoke removal system.
18.40.200 Amend CBC Section 910.3—Smoke and heat vents.
18.40.210 Add CBC Section 910.3.6—Sprinkler buildings.
18.40.220 Add CBC Section 912.1.1—Design.
18.40.230 Amend CBC Section 912.2.1—Visible location.
18.40.240 Amend CBC Section 912.4—Access.
18.40.250 Add CBC Section 1003.8—Protection of means of egress.
18.40.260 Add CBC Sections 1011.12.3 and 1011.12.4—Stairway to roof.
18.40.270 Amend CBC Section 1208.5—Efficiency dwelling units.
18.40.275 Amend CBC Section 1612.2.
18.40.280 Amend CBC Section 1612.3—Establishment of flood hazard areas.
18.40.290 Amend CBC Section 1612.4—Flood hazard documentation.
18.40.300 Add CBC Sections 1613.8 and 1613.8.1—Amendments to ASCE 7.
18.40.310 Add CBC Section 1613.8.2—Wood Diaphragms.
18.40.320 Add CBC Section 1613.8.3—Structural separation.
18.40.330 Add CBC Section 1613.9—Suspended ceiling.

18.40.340 Amend CBC Section 1704.6—Structural observations.
18.40.350 Amend CBC Section 1704.6.1—Structural observations for structures.
18.40.360 Amend CBC Section 1705.3—Concrete construction.
18.40.370 Amend CBC Section 1705.13—Special inspections for seismic resistance.
18.40.380 Amend CBC Section 1707.1—Alternative test procedure.
18.40.390 Amend CBC Section 1807.1.4—Permanent wood foundation systems.
18.40.400 Amend CBC Section 1807.1.6—Prescriptive design of concrete and masonry foundation walls.
18.40.410 Amend CBC Section 1807.2—Retaining walls.
18.40.420 Amend CBC Section 1807.3.1—Limitations.
18.40.430 Amend CBC Section 1809.3—Stepped footings.
18.40.440 Amend CBC Section 1809.7 and Table 1809.7—Prescriptive footings for light-frame construction.
18.40.450 Amend CBC Section 1809.12—Timber footings.
18.40.460 Amend CBC Section 1810.3.2.4—Timber.
18.40.470 Amend CBC Section 1905.6.2—Seismic design categories C, D, E and F.
18.40.480 Add CBC Sections 1905.8 through 1905.10, Modifications to ACI 318.
18.40.490 Amend CBC Section 2304.10.2—Fastener requirements.
18.40.500 Add CBC Section 2304.10.3.1—Quality of nails.
18.40.510 Amend CBC Section 2304.12.2.8—Wood used in retaining walls and cribs.
18.40.520 Add CBC Section 2305.4—Hold-down connectors.
18.40.530 Amend CBC Section 2306.2—Wood-frame diaphragms.
18.40.540 Amend CBC Section 2306.3—Wood-frame shear walls.
18.40.550 Add CBC Section 2307.2—Wood-frame shear walls.
18.40.560 Amend CBC Table 2308.10.1—Wall bracing requirements.
18.40.570 Amend CBC Section 2308.10.5.1 and Figure 2308.10.5.1—Alternate braced wall (ABW).
18.40.580 Amend CBC Section 2308.10.5.2 and Figure 2308.10.5.2—Portal frame with hold-downs (PFH).
18.40.590 Amend CBC Section 2308.10.8.1—Foundation requirements.
18.40.600 Amend CBC Section 2308.10.9—Attachment of sheathing.
18.40.610 Amend CBC Section 2503.1—Inspection.
18.40.620 Amend CBC Section 3007.6.1—Access to interior exit stairway or ramp.
18.40.630 Amend CBC Section 3114.1—General.
18.40.635 Amend CBC Section 3114.2—Construction documents.
18.40.640 Amend CBC Section 3114.8.4.2—Seismic design parameters.
18.40.650 Amend CBC Section G101.3—Flood hazard scope.
18.40.660 Amend CBC Section G101.4—Flood hazard violation.
18.40.670 Amend CBC Section G101.5—Flood hazard designation of local floodplain administrator.

18.40.680 Add CBC Section G101.6—Flood hazard disclaimer of liability.
18.40.690 Amend CBC Section G102.1—Flood hazard general definitions.
18.40.700 Amend CBC Section G103.1—Flood hazard general.
18.40.710 Amend CBC Section G103.2—Flood hazard establishment.
18.40.720 Add CBC Section G103.3—Flood hazard interpretation of FIRM boundaries.
18.40.730 Amend CBC Section G104.3—Flood hazard determination of design flood elevation.
18.40.740 Amend CBC Section G104.5—Flood hazard floodway encroachment.
18.40.750 Amend CBC Sections G104.6 and G104.6.1—Flood hazard watercourse alteration and engineering analysis.
18.40.760 Amend CBC Section G104.7—Flood hazard alterations in coastal areas.
18.40.770 Add CBC Section G104.11—Flood hazard letter of map revision.
18.40.780 Amend CBC Section G105.4—Flood hazard expiration.
18.40.790 Amend CBC Section G106.1—Flood hazard general variance.
18.40.800 Amend CBC Section G106.2—Flood hazard records.
18.40.810 Amend CBC Section G106.7—Flood hazard conditions for issuance.
18.40.820 Add CBC Section 3109.2.1—Required enclosure.
18.40.830 Add CBC Section 3109.2.2—Access gates.

Chapter 18.41 Residential Code

18.41.010 Adoption of California Residential Code.
18.41.020 Amend CRC Section 201.4—Terms not defined.
18.41.030 Amend CRC Section R301.1.3.2—Woodframe structures.
18.41.040 Amend CRC Table R301.2 and footnote g—Climatic and Geographic Design Criteria.
18.41.050 Amend CRC Section R301.2.2.6—Irregular buildings.
18.41.060 Add CRC Section R301.2.2.11—Anchorage of Mechanical, Electrical, or Plumbing Components and Equipment.
18.41.070 Amend CRC Section R308.1—Address identification.
18.41.080 Amend CRC Section R401.1—Application.
18.41.090 Amend CRC Section R403.1.2—Continuous footing in Seismic Design Categories D_0, D_1 and D_2.
18.41.100 Amend CRC Section R403.1.3.6—Isolated concrete footings.
18.41.110 Amend CRC Section R403.1.5—Slope.
18.41.120 Amend CRC Section R404.2—Wood foundation walls.
18.41.130 Add CRC Section R503.2.4—Openings in horizontal diaphragms.
18.41.140 Amend CRC Table R602.3(1)—Fastening schedule.
18.41.150 Amend CRC Section R602.3.2 and Table R602.3.2—Top plate.
18.41.160 Amend CRC Table R602.3(2)—Alternate attachments to CRC Table R602.3(1).
18.41.170 Amend CRC Section R602.10.2.3—Minimum number of braced wall panels.
18.41.180 Amend CRC Table R602.10.3(3)—Bracing requirements based on Seismic Design Category.

18.41.190 Amend CRC Table R602.10.4—Bracing methods.
18.41.200 Amend CRC Table R602.10.5—Minimum length of braced wall panels.
18.41.210 Amend CRC Figure R602.10.6.1—Method ABW: Alternate braced wall panel.
18.41.220 Amend CRC Figure R602.10.6.2—Method PFH: Portal frame with hold-downs at detached garage door openings.
18.41.230 Amend CRC Figure R602.10.6.4—Method CS-PF: Continuously sheathed portal frame panel construction.
18.41.240 Amend CRC Section R606.4.4-Parapet walls.
18.41.250 Amend CRC Section R606.12.2.2.3—Reinforcement requirements for masonry elements.
18.41.260 Add CRC Section R803.2.4—Openings in horizontal diaphragms.
18.41.270 Amend CRC Section R1001.3.1—Vertical reinforcing.
18.41.280 Amend CRC Section R306.1.1—Alternative provisions.
18.41.290 Amend CRC Section R306.1.4—Establishing the design flood elevation.
18.41.300 Add CRC Section CI100.1—Required enclosure.
18.41.310 Add CRC Section CI100.2—Access gates.

Chapter 18.42 Electrical Code

18.42.010 Adoption of California Electrical Code.

Chapter 18.43 Plumbing Code

18.43.010 Adoption of California Plumbing Code.

Chapter 18.44 Mechanical Code

18.44.010 Adoption of California Mechanical Code.

Chapter 18.45 Housing Code

18.45.010 Adoption of Uniform Housing Code.
18.45.020 Application.
18.45.030 Add UHC Chapter 17—Prohibited uses and maintenance.

Chapter 18.46 Energy Code

18.46.010 Adoption of California Energy Code.

Chapter 18.47 Green Building Standards Code

18.47.010 Adoption.
18.47.020 Amend CALGreen Sections 4.408.1 through 4.408.5—Construction waste reduction, disposal and recycling.
18.47.030 Amend CALGreen Section 5.303.1—Meters.
18.47.040 Add CALGreen Section 5.303.1.3—Mixed-use occupancy.

18.47.050 Amend CALGreen Sections 5.408.1 through 5.408.1.4—Construction waste reduction, disposal and recycling.

Chapter 18.48 Fire Code

18.48.010 Adoption of the California Fire Code.
18.48.020 CFC Chapter 1, Section 101.1—Title.
18.48.030 CFC Chapter 1, Section 101.2—Scope.
18.48.040 CFC Chapter 1, Section 101.2—Scope.
18.48.045 CFC Chapter 1, Section 103.1—Fire Prevention Bureau.
18.48.050 CFC Chapter 1, Section 103.2—Appointment.
18.48.060 CFC Chapter 1, Section 104.4—Right of entry.
18.48.070 CFC Chapter 1, Section 104.7—Official records.
18.48.080 CFC Chapter 1, Section 105.1.2—Types of permits.
18.48.090 CFC Chapter 1, Section 105.1.2—Types of permits.
18.48.100 CFC Chapter 1, Section 105.2—Application.
18.48.110 CFC Chapter 1, Section 105.3.1—Expiration.
18.48.120 CFC Chapter 1, Section 105.5—Required operational permits.
18.48.130 CFC Chapter 1, Section 105.5—Required operational permits.
18.48.140 CFC Chapter 1, Section 105.5.18—Flammable and combustible liquids.
18.48.150 CFC Chapter 1, Section 105.6—Required construction and inspection permits.
18.48.160 CFC Chapter 1, Section 105.6—Required construction and inspection permits.
18.48.170 CFC Chapter 1, Section 108—Fees.
18.48.180 CFC Chapter 1, Section 110.2—Testing and operation.
18.48.190 CFC Chapter 1, Section 110.6—Overcrowding.
18.48.200 CFC Chapter 1, Section 113.4—Violation penalties.
18.48.210 CFC Chapter 1, Section 114.4—Failure to comply.
18.48.220 CFC Chapter 1—Administration.
18.48.230 CFC Chapter 2, Section 202—General definitions.
18.48.240 CFC Chapter 3, Section 307.1.1—Prohibited open burning.
18.48.250 CFC Chapter 3, Section 307.4.2—Recreational fires.
18.48.260 CFC Chapter 3, Section 308.1.7—Sky lanterns.
18.48.270 CFC Chapter 3, Section 312.2—Posts.
18.48.280 CFC Chapter 4, Section 403.11—Special requirements for public safety.
18.48.290 CFC Chapter 5, Section 503.2.1—Dimensions.
18.48.300 CFC Chapter 5, Section 503.2.3—Surface.
18.48.310 CFC Chapter 5, Section 503.2.4—Turning radius.
18.48.320 CFC Chapter 5, Section 505.1—Address identification.
18.48.330 CFC Chapter 5, Section 505.1—Address identification.
18.48.340 CFC Chapter 5, Section 506.1—Where required.

18.48.350 CFC Chapter 5, Section 507.2.1—Private fire service mains.

18.48.360 CFC Chapter 5, Section 507.5—Fire hydrant systems.

18.48.370 CFC Chapter 5, Section 507.5—Fire hydrant systems.

18.48.380 CFC Chapter 5, Section 510.5.4—Acceptance test procedures.

18.48.390 CFC Chapter 5—Fire Service Features.

18.48.400 CFC Chapter 9, Section 901.4.2—Nonrequired fire protection and life safety systems.

18.48.410 CFC Chapter 9, Section 901.4—Fire protection and life safety systems.

18.48.420 CFC Chapter 9, Section 903.1—General.

18.48.430 CFC Chapter 9, Section 903.2—Where required.

18.48.440 CFC Chapter 9, Section 903.2.8—Group R.

18.48.450 CFC Chapter 9, Section 903.3.5—Water supplies.

18.48.460 CFC Chapter 9, Section 903.3.10.1—Floor control valves.

18.48.470 CFC Chapter 9, Section 903.4.2—Monitoring.

18.48.480 CFC Chapter 9, Section 903.4.3—Alarms.

18.48.490 CFC Chapter 9, Section 903.4.3—Alarms.

18.48.500 CFC Chapter 9, Section 903.4—Sprinkler system supervision and alarms.

18.48.510 CFC Chapter 9, Section 905.1—General.

18.48.520 CFC Chapter 9, Section 905.4 Subsection 1—Location of Class I standpipe hose connections.

18.48.530 CFC Chapter 9, Section 907.1—General.

18.48.540 CFC Chapter 9, Section 907.3.1—Duct smoke detectors.

18.48.550 CFC Chapter 9, Section 907.3.1 Exception 2—Duct smoke detectors.

18.48.560 CFC Chapter 9, Section 907—Fire alarm and detection systems.

18.48.570 CFC Chapter 9, Section 910.3—Smoke and heat vents.

18.48.580 CFC Chapter 9, Section 910.3—Smoke and heat vents.

18.48.590 CFC Chapter 9, Section 912.1—Installation.

18.48.600 CFC Chapter 9, Section 912.2.1—Visible location.

18.48.610 CFC Chapter 9, Section 912.4—Access.

18.48.620 CFC Chapter 10, Section 1003—General means of egress.

18.48.630 CFC Chapter 10, Section 1011.12—Stairway to roof.

18.48.640 CFC Chapter 23, Section 2303.1.1—Protection of dispensing devices.

18.48.650 CFC Chapter 23, Section 2306.7.9.2—Vapor-processing systems.

18.48.660 CFC Chapter 23, Section 2306.7.9.2—Vapor-processing system.

18.48.670 CFC Chapter 35—Welding and other hot work.

18.48.680 CFC Chapter 36, Section 3604—Fire protection equipment.

18.48.690 CFC Chapter 48, Section 4807.1—Fire safety officers.

18.48.700 CFC Chapter 56, Section 5601.1—Scope.

18.48.710 CFC Chapter 56, Section 5601.2.4—Financial responsibility.

18.48.720 CFC Chapter 56, Section 5608—Fireworks display.

18.48.730 CFC Chapter 57, Section 5705.3.5.2 Subsection 7—Group R occupancies.

18.48.740 CFC Chapter 61, Section 6101.3—Construction documents.

18.48.750 CFC Chapter 61, Section 6101—General.

18.48.760 CFC Chapter 61, Section 6103.2.2—Industrial vehicles and floor maintenance machines.

18.48.770 CFC Chapter 61, Section 6104.3—Container location.

18.48.780 CFC Appendix B, Table B105.1(1)—Required fire flow for one- and two-family dwellings, Group R-3 and R-4 buildings and townhouses.

18.48.790 CFC Appendix B, Table B105.2—Required fire flow for buildings other than one- and two-family dwellings, Group R-3 and R-4 buildings and townhouses.

Chapter 18.49 Existing Building Code

18.49.010 Adoption of California Existing Building Code.

18.49.020 Amend CEBC Section 201.4—Terms not defined.

18.49.025 Amend CEBC Section 502.4—Existing structural elements carrying lateral load.

18.49.026 Amend CEBC Section 503.4—Existing structural elements carrying lateral load.

18.49.030 Amend CEBC Section 506.1—Compliance.

18.49.040 Amend CEBC Section 506.1.1—Change in the character of use.

18.49.050 Amend CEBC Section 506.5.3—Seismic loads.

18.49.060 Amend CEBC Section 805.3—Existing structural elements resisting lateral loads.

18.49.070 Amend CEBC Section 906.2—Existing structural elements resisting lateral loads.

18.49.080 Amend CEBC Section 1006.3—Seismic loads.

18.49.090 Amend CEBC Section 1103.2—Lateral force-resisting system.

18.49.100 Amend CEBC Section 1401.2—Conformance.

Chapter 18.50 Historical Building Code

18.50.010 Adoption of California Historical Building Code.

18.50.020 Amend CHBC Section 8-201—Definitions.

18.50.030 Amend CHBC Section 8-706.1.2—Evaluation and seismic improvement of URM buildings.

18.50.040 Amend CHBC Section 8-805.1—Existing solid masonry.

18.50.050 Amend CHBC Section 8-805.2.1—Solid backed stone masonry.

18.50.060 Amend CHBC Section 8-805.2.3—Testing of stone masonry.

Chapter 18.51 Wildland-Urban Interface Code

18.51.010 Adoption of California Wildland-Urban Interface Code.

Chapter 18.60 Moving Buildings

18.60.010 Definitions.

18.60.020 Permit—Required.

18.60.030 Permit—Qualification for issuance.
18.60.040 Permit—Terms and conditions of issuance.
18.60.050 Permits—Application—Examination of structure.
18.60.060 Payment of permit fees.
18.60.070 Moving notice—Posting—Contents.
18.60.080 Notice of decision to grant or deny permit.
18.60.090 Written protests against moving—Hearing.
18.60.100 Public hearing on protests—Notice.
18.60.110 Hearing and determination by Board of Examiners, Appeals and Condemnation.
18.60.120 Issuance of permit.
18.60.130 Bond—Posting required.
18.60.140 Bond—Conditions.
18.60.150 Bond—Notice of default to principal and surety.
18.60.160 Bond—Default—Option of surety.
18.60.170 Bond—Term.
18.60.180 Bond—Rights of access to premises.
18.60.190 Expiration of permit—Extension.
18.60.200 Fee schedule.
18.60.210 Route—Approval of Police, Park, and Public Works Departments.
18.60.220 Applicability of chapter.

Chapter 18.62 Report on Available Off-Street Parking Spaces Upon Resale

18.62.010 Intent and purpose.
18.62.020 Definitions.
18.62.030 Report or exemption certificate required.
18.62.040 Application.
18.62.050 Inspection.
18.62.060 Citation.
18.62.070 Delivery of report.
18.62.080 Exemption certificate.
18.62.090 Exclusions.
18.62.100 Penalties.

Chapter 18.63 Alternative Building Standards for Adaptive Reuse Projects

18.63.010 Purpose.
18.63.020 Applicability.
18.63.030 Alternative Building Standards Manual.

Chapter 18.64 Sandblasting

18.64.010 Permit—Required.

18.64.020 Permit—State license required.
18.64.030 Permit—Separate premises.
18.64.040 Permit—Application.
18.64.050 Permit—Inspection fee.
18.64.060 Notice of sandblasting.
18.64.070 Dry sandblasting.
18.64.080 Permitted hours.
18.64.090 Property protection.

Chapter 18.65 Demolition of Historic Landmarks

18.65.010 Demolition of landmarks prohibited without building permit and funding for replacement structure.
18.65.020 Appeal to City Council.
18.65.030 Exception.
18.65.040 Construction.

Chapter 18.67 Construction and Demolition Recycling Program

18.67.005 Purpose.
18.67.010 Definitions.
18.67.020 Covered projects.
18.67.030 Submission of a waste management plan.
18.67.040 Waste diversion deposit.
18.67.050 Administrative fee.
18.67.060 Review of WMP.
18.67.070 Compliance with a WMP.
18.67.080 Exemption.
18.67.090 Appeal.

Chapter 18.68 Earthquake Hazard Regulations

18.68.010 Purpose.
18.68.020 Scope.
18.68.021 Definitions.
18.68.022 Symbols and notations.
18.68.023 General requirements.
18.68.024 Material requirements.
18.68.025 Quality control.
18.68.026 Allowable design values.
18.68.027 Analysis and design.
18.68.028 Detailed system design requirements.

18.68.030 Prima facie hazard grading.
18.68.040 Special and intermediate hazards.
18.68.050 Priority and method of grading.
18.68.060 Calculation of actual lateral force capacity V_{CAP}.
18.68.070 Hazardous grading and dates of corrective action.
18.68.080 Hazardous grading subject to change.
18.68.090 Notice of corrective action.
18.68.100 Application for order of abatement of nuisance.
18.68.110 Hearing by Board.
18.68.120 Appeals to City Council.
18.68.130 Owner responsibility to demolish structure.
18.68.135 Landmark structures—Alternatives to demolition.
18.68.140 Notice of pending order of demolition.
18.68.150 Owner responsibility to accomplish hazard reduction measures.
18.68.160 Jurisdiction of Board or Council over certain cases.
18.68.170 Hearing—Failure of owner to proceed in good faith.
18.68.180 Notification to owners of buildings four stories or more in height.
18.68.190 Notice of county recorder.
18.68.200 Figure No. A-23-1.
18.68.210 Tables A-23-A through A-23-F.
18.68.220 Standard No. 24-40, in-place masonry shear tests.
18.68.221 Standard No. 24-41, tests of anchors in unreinforced masonry walls.
18.68.222 Standard No. 24-42, pointing of unreinforced masonry walls.

Chapter 18.69 Voluntary Earthquake Hazard Reduction in Existing Wood Frame Residential Buildings with Weak Cripple Walls and Unbolted Sill Plates

18.69.010 General.
18.69.020 Definitions.
18.69.030 Structural weaknesses.
18.69.040 Strengthening requirements.
18.69.050 Quality control.

Chapter 18.70 Voluntary Earthquake Hazard Reduction in Existing Wood Frame Residential Buildings with Soft, Weak or Open Front Walls

18.70.010 Purpose.
18.70.020 Scope.
18.70.030 Definitions.
18.70.040 General requirements for phased construction.
18.70.050 Analysis and design.

18.70.060 Materials of construction.
18.70.070 Required information on construction documents.

Chapter 18.71 Voluntary Earthquake Hazard Reduction in Existing Reinforced Concrete Buildings and Concrete Frame Buildings with Masonry Infills

18.71.010 Purpose.
18.71.020 Scope.
18.71.030 Definitions.
18.71.040 General requirements.
18.71.050 Criteria selection.
18.71.060 Dynamic lateral analysis procedure.
18.71.070 Equivalent lateral force procedure.
18.71.080 Simplified analysis procedure.
18.71.090 Minimum requirements for a limited structural analysis.
18.71.100 Determination of the stress-strain relationship of existing unreinforced masonry.
18.71.110 Evaluation of existing structural conditions.
18.71.120 Materials of construction.

Chapter 18.72 Voluntary Earthquake Hazard Reduction in Existing Reinforced Concrete and Reinforced Masonry Wall Buildings with Flexible Diaphragms

18.72.010 Purpose.
18.72.020 Scope.
18.72.030 Definitions.
18.72.040 Analysis and design.
18.72.050 Materials of construction.
18.72.060 Information required on construction documents.

Chapter 18.74 Low Impact Development Standards

18.74.010 Purpose.
18.74.020 Definitions.
18.74.030 LID requirements and applicability.
18.74.035 LID Exemptions.
18.74.040 LID plan review.
18.74.050 LID plan review, permit, and Offsite Runoff Mitigation fees.
18.74.060 LID Best Management Practices Manual.

Chapter 18.75 Grading, Excavations and Fills

18.75.010 General.
18.75.020 Definitions.
18.75.030 Grading bonds in hazardous situations required.

18.75.040 Excavations.
18.75.050 Fills.
18.75.060 Setbacks.
18.75.070 Drainage and terracing.
18.75.080 Erosion control.
18.75.090 Referenced standards.

Chapter 18.76 Streamlined Permitting Process for Electric Vehicle Charging Stations and Hydrogen-Fueling Stations

18.76.010 General.
18.76.020 Definitions.
18.76.030 Permit application and submittal.
18.76.040 Inspection.
18.76.050 Permitting documentation.

Chapter 18.77 Streamlined Permitting Process for Solar Energy Systems and Energy Storage Systems

18.77.010 General.
18.77.020 Definitions.
18.77.030 Permit application and submittal.
18.77.040 Inspection.
18.77.050 Permitting documentation.

Chapter 18.78 Construction in the Vicinity of Abandoned Oil Wells

18.78.010 Applicability.
18.78.020 Exemptions.
18.78.030 Definitions.
18.78.040 Prerequisites.
18.78.050 Well Safety Evaluation Submittal requirements.
18.78.060 Well abandonment.
18.78.070 Site clean-up.
18.78.080 Methane mitigation.
18.78.090 Indemnity Agreement.
18.78.100 Declaration of Covenant.
18.78.110 Fees.
18.78.120 Site restoration for vacated projects.

Chapter 18.79 Methane Gas Mitigation

18.79.010 Purpose.
18.79.020 Scope.
18.79.030 Definitions.

18.79.040 Applicability.
18.79.050 Exemptions.
18.79.060 Methane soil gas investigation.
18.79.070 Methane gas mitigation design requirements.
18.79.080 Operation and maintenance plan.
18.79.090 Qualified professional project certification.
18.79.100 Covenant and agreement.
18.79.110 Reference Standards.
18.79.120 Adoption of administrative rules.

Chapter 18.99 Findings

18.99.010 Purpose.

CHAPTER 18.01 GENERAL PROVISIONS

18.01.010 Title.

These regulations shall be known as the "Long Beach Building Standards Code," a portion of the "Long Beach Municipal Code," hereinafter referred to as "this title." This title adopts by reference portions of the California Building Standards Code as required by Section 17958 of the California Health and Safety Code. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.01.020 Purpose.

The purpose of this title is to:

1. Establish the minimum requirements to safeguard the public health, safety and general welfare through structural strength, means of egress facilities, accessibility, stability, sanitation, adequate light and ventilation, energy conservation, and safety to life and property from fire and other hazards attributed to the built environment and to provide safety to fire fighters and emergency responders during emergency operations.

2. Provide minimum provisions considered necessary for safety, efficiency, adequacy and the practical safeguarding of persons and of buildings, structures and their contents from hazards arising from the use of electricity for light, heat, power, radio signaling and for other purposes, as well as some provisions for future expansion of electrical use.

3. Provide minimum requirements and standards for the protection of the public health, safety and welfare by regulating and controlling the design, construction, installation, quality of materials, location, operation and maintenance of plumbing fixture and fixture fittings, water heaters, water supply and distribution system, sanitary drainage, indirect wastes, vents, traps and interceptors, storm drainage, fuel piping, and gray water systems.

4. Provide minimum standards to safeguard life or limb, health, property and public welfare by regulating and controlling the design, construction, installation, quality of materials, location, operation and maintenance of heating, ventilating, cooling, refrigeration systems, incinerators and other miscellaneous heat producing appliances.

5. Improve public health, safety and general welfare by enhancing the design and construction of buildings through the use of building concepts having a reduced negative impact, or positive environmental impact and encouraging sustainable construction practices in planning and design, energy efficiency, water efficiency and conservation, material conservation and resource efficiency, and environmental quality.

6. Ensure public health, safety and welfare insofar as they are affected by the continued occupancy and maintenance of structures and premises.

7. Establish the minimum requirements consistent with nationally recognized good practice for providing a reasonable level of life safety and property protection from the hazards of fire, explosion or dangerous conditions in new and existing buildings, structures and premises and to provide safety to fire fighters and emergency responders during emergency operations. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.01.030 Scope.

The provisions of this title shall apply to:

1. The site preparation and the construction, alteration, relocation, enlargement, replacement, repair, equipment, use and occupancy, location, maintenance, removal and demolition of every building or structure or appurtenances connected or attached to such buildings and structures within the City, except work located primarily in a public way, as regulated by Title 14, other than pedestrian protection structures required by Section 3306 of the California Building Code adopted in Chapter 18.40, public utility, towers and poles, mechanical equipment not specifically regulated in this title, and hydraulic flood control structures.

2. All electrical systems or equipment installed, used, maintained, rented, leased, or of-

fered for sale or distributed for use in the City, except those electrical systems and equipment exempted from the provisions of this title.

3. The erection, installation, alteration, repair, relocation, replacement, addition to, use, or maintenance of plumbing within the City, except those plumbing and plumbing installations exempted from the provisions of this title.

4. The addition to or erection, installation, alteration, repair, relocation, replacement, use, or maintenance of any heating, ventilating, cooling, refrigeration systems; incinerators; or other miscellaneous heat-producing appliances within the City, except those mechanical systems and equipment exempted from the provisions of this title. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.01.040 Work not in scope.

The provisions of this title shall not apply to any of the following:

1. Swings and other playground equipment accessory to detached one- and two-family dwellings.

2. Towers or poles supporting public utility communication lines, antennas, or power transmission lines.

3. Gantry cranes, drill presses, and other similar manufactured machinery or equipment.

4. Water tanks supported on a foundation at grade if the capacity does not exceed five thousand (5,000) gallons (18,927 L) and the ratio of the height to diameter or width does not exceed two to one (2:1).

5. Temporary motion picture, television and theater stage sets and scenery that are not supported by any building.

6. Work in a public way, dams and drainage structures constructed by or under contract with the Department of Public Works, the Department of Water and the County Flood Control District, unless the structure forms a portion of the support for a building or a structure coming within the jurisdiction of the Building Official.

7. Portable amusement devices and structures, including merry-go-rounds, Ferris wheels, rotating conveyances, slides, similar devices, and portable accessory structures whose use is necessary for the operation of such amusement devices and structures; any portable accessory structure included in the provisions of this chapter shall be limited to a cover or roof over each device, but shall not include any storage building or detached structure which is not an integral part of the device; and provided, however, that any electrical installations shall require subtrade permits where applicable and be regulated by this title; and provided further that any special event activity shall require Fire Department's approval.

8. Nothing in this title shall apply to any excavation, removal, fill or deposit of any earth or other materials from individual interment sites, underground crypts or burial vaults within a property which is dedicated or used for cemetery purposes, provided that such work does not affect the lateral support or increase the stresses in or pressure upon any adjacent or contiguous property not owned by the cemetery authority.

9. Any portable metal hangar less than two thousand (2,000) square feet in size, located on the City-owned airport property, used for the parking of aircraft only, and bearing evidence of approval by the California Department of Motor Vehicles for movement on any highway. Such structure shall, as an integral part of its basic construction, be equipped with a hitch or coupling device for towing. It shall accommodate, without further major structural change, wheel and axle assemblies which will provide such structure with a safe means of portability. No water or sanitary facilities shall be permitted in such structure and it shall be equipped with permanent ventilation as required for group S-2 occupancy; and is not in violation of the Zoning Regulations. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.01.050 Referenced codes.

The codes listed in this section and referenced elsewhere in this title shall be considered part of the requirements of this title to the prescribed extent of each such reference.

A. Building Code. The provisions of the California Building Code adopted in Chapter 18.40 shall apply to the construction, alteration, movement, enlargement, replacement, repair, equipment, use and occupancy, location, maintenance, removal and demolition of every building or structure or any appurtenances connected or attached to such buildings or structures.

B. Residential Code. The provisions of the California Residential Code adopted in Chapter 18.41 shall apply to the construction, alteration, movement, enlargement, replacement, repair, equipment, use and occupancy, location, removal and demolition of detached one- and two-family dwellings and townhouses not more than three (3) stories above grade plane in height with a separate means of egress and their accessory structures not more than three (3) stories above grade plane in height.

C. Electrical Code. The provisions of the California Electrical Code adopted in Chapter 18.42 shall apply to the installation of electrical systems, including alterations, repairs, replacement, equipment, appliances, fixtures, fittings and appurtenances thereto.

D. Plumbing Code. The provisions of the California Plumbing Code adopted in Chapter 18.43 shall apply to the installation, alteration, repair and replacement of plumbing systems, including equipment, appliances, fixtures, fittings and appurtenances, and where connected to a water or sewage system and all aspects of a medical gas system.

EXCEPTION: Chapter 18.43 shall not apply to any sewer, potable water, or gas lines or pipes constructed, maintained and regulated by a City department or agency.

E. Mechanical Code. The provisions of the California Mechanical Code adopted in Chapter 18.44 shall apply to the installation, alterations, repairs and replacement of mechanical systems, including equipment, appliances, fixtures, fittings and/or appurtenances, including ventilating, heating, cooling, air-conditioning and refrigeration systems, incinerators and other energy-related systems.

F. Housing Code. The provisions of the Uniform Housing Code adopted in Chapter 18.45 shall apply to existing structures and premises; equipment and facilities; light, ventilation, space heating, sanitation, life and fire safety hazards; responsibilities of owners, operators and occupants; and occupancy of existing buildings or portions thereof used, or designed or intended to be used, for human habitation.

G. Energy Code. The provisions of the California Energy Code adopted in Chapter 18.46 shall apply to all matters governing the design and construction of buildings for energy efficiency.

H. Green Building Code. The provisions of the California Green Building Standards Code adopted in Chapter 18.47 shall apply to the planning, design, operation, construction, use and occupancy of every newly constructed building or structure, unless otherwise indicated in this title, throughout the City.

I. Fire Code. The provisions of the California Fire Code adopted in Chapter 18.48 establishes regulations affecting or relating to structures, processes, premises and safeguards relating to all of the following:

1. The hazard of fire and explosion arising from the storage, handling or use of structures, materials or devices.

2. Conditions hazardous to life, property or public welfare in the occupancy of structures or premises.

3. Fire hazards in the structure or on the premises from occupancy or operation.

4. Matters related to the construction, extension, repair, alteration or removal of fire suppression and alarm systems.

5. Conditions affecting the safety of fire fighters and emergency responders during emergency operations.

J. Existing Building Code. The provisions of the California Existing Building Code adopted in

Chapter 18.49 shall apply to the repair, alteration, change of occupancy, addition and relocation of existing buildings and structures.

K. Historical Building Code. The provisions of the California Historical Building Code adopted in Chapter 18.50 shall apply in permitting repairs, alterations and additions necessary for the preservation, restoration, reconstruction, rehabilitation, relocation or continued use of a qualified historical building or property when so elected by the private property owner.

L. Wildland-Urban Interface Code. The provisions of the California Wildland-Urban Interface Code adopted in Chapter 18.51 shall apply to the construction of all new buildings constructed in any fire hazard severity zone or any wildland-urban interface fire area.

M. Zoning Regulations. The provisions of the Zoning Regulations of the City of Long Beach and the Transitional Zoning Code adopted in Titles 21 and 22, respectively, shall apply to all development or use of property within the City of Long Beach, as indicated in the applicable Title. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.01.060 Applicability.

A. General. Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall be applicable. Where, in any specific case, different chapters or sections of this title specify different materials, methods of construction or other requirements, the most restrictive shall govern. All the provisions of this title shall be limitations for safeguarding life, limb, health, property and public welfare. If two (2) or more pertinent limitations are not identical, those limitations shall prevail which provide the greater safety to life or limb, health, property or public welfare.

B. Other laws. The provisions of this title shall not be deemed to nullify any provisions of local, State or Federal law.

C. Referenced codes and standards. The codes and standards referenced in this title shall be considered part of the requirements of this title to the prescribed extent of each such reference. Where differences occur between provisions of this title and referenced codes and standards, the provisions of this title shall apply. Wherever in this title reference is made to the appendix of a referenced code or standard, the provisions in the appendix shall not apply unless specifically adopted by this title. Where intervening code adoption, errata, or supplement of referenced codes or standards results in the requirements of this title being in conflict with the referenced codes or standards, the more restrictive requirement shall apply except where determined by the Building Official that the adopted amendment is applicable.

D. Partial invalidity. In the event that any part or provision of this title is held to be illegal or void, this shall not have the effect of making void or illegal any of the other parts or provisions.

E. Existing buildings or structures.

1. Legal occupancy. The legal occupancy of any building and structure existing on the date of adoption of this title shall be permitted to continue without change, except as is specifically covered in this title, the codes and standards referenced and adopted in this title, or as is deemed necessary by the Building Official or Fire Code Official for the general safety and welfare of the occupants and the public.

2. Responsibility for maintenance. All buildings and structures, both existing and new, and all parts thereof, shall be maintained in a safe and sanitary condition. All devices or safeguards that are required by this title shall be maintained in conformance with the code requirements under which it was installed. To determine compliance with this section, the Building Official or Fire Code Official may cause any building or structure to be reinspected.

Every owner remains liable for violations of duties imposed upon him or her by this title even though an obligation is also imposed on the occupants of his or her building, and even though the owner has, by agreement, imposed on the occupant the duty of furnishing required equipment or of complying with this title.

Every owner, or his or her agent, in addition to being responsible for maintaining his or her building in a sound structural condition, shall be responsible for keeping that part of the building or premises which he or she occupies or controls in a clean, sanitary and safe condition including the shared or public areas in a building containing two (2) or more dwellings.

F. Existing subtrade installation.

1. Existing electrical installation. Nothing contained in this title shall be construed to restrict the use, nor to require any person to reinstall, reconstruct, alter, change or remove any electrical wiring or equipment which complied with the laws and regulations of the City in effect before the effective date of this title unless the same is dangerous, unsafe or a hazard to life or property in the judgment of the Building Official. Additions or alterations to, and alterations and renewals of existing installations shall be made in compliance with the provisions of this title.

EXCEPTION: In locations where the existing electrical system was of some other type of approved wiring, an existing circuit may be increased to its maximum safe carrying capacity or with the addition of not to exceed five (5) lights, plugs or switch outlets. Not more than ten (10) such outlets may be added to an existing electrical system unless all new wiring is in conformity with the provisions of this title.

2. Existing plumbing installation. Nothing contained in this title, with the exception of the change of building occupancy or use, shall be construed to require any plumbing construction or work, regulated by this title to be altered, changed, reconstructed, removed or demolished if such plumbing work was installed which complied with the laws and regulations of the City in effect before the effective date of this title, unless the same is dangerous, unsafe, unsanitary or a menace to life, health or property, in the judgment of the Building Official.

Plumbing systems that are a part of any building or structure undergoing a change in use or occupancy shall comply with all requirements of this title that may be applicable to the new use or occupancy.

3. Existing mechanical installation. Additions, alterations or repairs may be made to any mechanical system without requiring the existing mechanical system to comply with all the requirements of this title, provided the addition, alteration or repair conforms to that required for a new mechanical system. Additions, alterations or repairs shall not cause an existing system to become unsafe or create unhealthy or overloaded conditions in the judgment of the Building Official.

EXCEPTION: Minor additions, alterations and repairs to existing mechanical systems may be installed in accordance with the law in effect at the time the original installation was made if such mechanical system may be used safely for such purposes, that there is an urgent necessity for such use, and if approved by the Building Official.

Heating, ventilating, cooling, or refrigeration systems, incinerators or other miscellaneous heat producing appliances lawfully installed prior to the effective date of this title may have their existing use, maintenance or repair continued if the use, maintenance or repair is in accordance with the original design and location and is not a hazard to life, health or property in the judgment of the Building Official.

Mechanical systems that are a part of any building or structure undergoing a change in use or occupancy shall comply with all requirements of this title that may be applicable to the new use or occupancy.

All heating, ventilating, cooling, or refrigeration systems, incinerators or other miscellaneous heat-producing appliances, both existing and new, and all parts thereof, shall be maintained in a safe and sanitary condition. All devices or safeguards which are required by this title in heating, ventilating, cooling, or refrigeration systems, incinerators or other miscellaneous heat-producing appliances when installed, altered or repaired, shall be maintained in good working order. The owner, or his designated agent, shall be responsible for the main-

tenance of heating, ventilating, cooling, refrigeration systems, incinerators or other miscellaneous heat-producing appliances.

G. Unsafe buildings or structures. The regulations for the abatement of unsafe buildings and structures are enumerated in Chapter 18.20.

H. Long-term boarded or vacated buildings. The regulations for the maintenance of long-term boarded or vacated buildings are enumerated in Chapter 18.21.

I. Temporary structures and uses. The regulations for temporary structures and uses are enumerated in Subsection 18.04.010.H.

J. Moved buildings or structures. Buildings or structures moved into or within the City shall comply with the provisions of this title for new buildings or structures. The regulations for moving buildings are enumerated in Chapter 18.60.

EXCEPTION: Apartment houses and dwellings shall be allowed the retention of existing materials and methods of construction so long as the apartment house or dwelling complies with the rules and regulations of the California Housing and Community Development Commission, complies with the standards for foundations applicable to new construction, and does not become or continue to be a substandard building.
(ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.02 DEFINITIONS

18.02.010 General.

A. Scope. Unless otherwise expressly stated, the following words and terms shall, for the purpose of this title, have meanings shown in this chapter.

B. Interchangeability. Words used in the present tense include the future; words stated in the masculine gender include the feminine and neuter; the singular number includes the plural and the plural, the singular.

C. Terms defined in other titles, chapters or codes. Where terms are not defined in this title and are defined in other titles, chapters or codes, such terms shall have the meanings ascribed to them as in those titles, chapters or codes.

D. Terms not defined. Where terms are not defined through the methods authorized by this section, such terms shall have ordinarily accepted meanings such as the context implies. Webster's Third New International Dictionary of the English Language, Unabridged shall be considered as providing ordinarily accepted meanings. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.02.020 Definitions.

"Building Official" means a duly authorized representative for the City of Long Beach Department of Community Development, Building and Safety Bureau or Code Enforcement Bureau, designated by the Director.

"California Building Code" or "CBC" or "Building Code" means the code adopted in Chapter 18.40 of this title.

"California Electrical Code" or "CEC" or "Electrical Code" means the code adopted in Chapter 18.42 of this title.

"California Energy Code" or "Energy Code" means the code adopted in Chapter 18.46 of this title.

"California Existing Building Code" or "CEBC" or "Existing Building Code" means the code adopted in Chapter 18.49 of this title.

"California Fire Code" or "CFC" or "Fire Code" means the code adopted in Chapter 18.48 of this title.

"California Green Building Standards Code" or "CalGreen Code" or "Green Code" means the code adopted in Chapter 18.47 of this title.

"California Historical Building Code" or "CHBC" or "Historical Building Code" means the code adopted in Chapter 18.50 of this title.

"California Mechanical Code" or "CMC" or "Mechanical Code" means the code adopted in Chapter 18.44 of this title.

"California Plumbing Code" or "CPC" or "Plumbing Code" means the code adopted in Chapter 18.43 of this title.

"California Residential Code" or "CRC" or "Residential Code" means the code adopted in Chapter 18.41 of this title.

"California Wildland-Urban Interface Code" or "CWUI" or "WUI Code" means the code adopted in Chapter 18.51 of this title.

"Certificate of Occupancy" or "Occupancy Certificate" means the certificate issued by the Building Official pursuant to Chapter 18.08 when, after final inspection, it is found that a building or structure complies with all requirements of this title. When used with reference to a building or structure which was constructed and occupied prior to the effective date of any provisions requiring such a certificate, it shall mean the right to occupy such building or structure.

"City" means the City of Long Beach, California.

"Dangerous building" or "dangerous" means any building or structure which has any or all of the conditions or defects hereinafter described, provided that such conditions or defects exist to the extent that life, health, property, or safety of the public or its occupants are endangered or persons in the vicinity thereof:

1. Whenever any door, aisle, passageway, stairway or other means of exit is not of sufficient width or size, or is not so arranged as to provide safe and adequate means of exit in case of fire or panic;

2. Whenever the stress in any materials, member or portion thereof, due to all dead and live loads, is more than one and one-half (1-1/2) times the working stress or stresses allowed in this title for new buildings of similar structure, purpose or location;

3. Whenever any portion thereof has been damaged by fire, earthquake, wind, flood, or by any other cause, to such an extent that the structural strength or stability thereof is materially less than it was before such catastrophe and is less than the minimum requirements of this title for new buildings of similar structure, purpose or location;

4. Whenever any portion or member or appurtenance thereof is likely to fail, or to become detached or dislodged, or to collapse and thereby injure persons or damage property;

5. Whenever any portion of a building, or any member, appurtenance or ornamentation on the exterior thereof is not of sufficient strength or stability, or is not so anchored, attached or fastened in place so as to be capable of resisting a wind pressure of one-half (1/2) of that specified in this title for new buildings of similar structure, purpose or location without exceeding the working stresses permitted in this title for such buildings;

6. Whenever any portion thereof has wracked, warped, buckled or settled to such an extent that walls or other structural portions have materially less resistance to winds or earthquakes than is required in the case of similar new construction;

7. Whenever the building or structure, or any portion thereof, because of: (a) dilapidation, deterioration, or decay; (b) faulty construction; (c) the removal, movement or instability of any portion of the ground necessary for the purpose of supporting such building; (d) the deterioration, decay or inadequacy of its foundation; or (e) any other cause, is likely to partially or completely collapse;

8. Whenever, for any reason, the building or structure, or any portion thereof, is manifestly unsafe for the purpose for which it is being used;

9. Whenever the exterior walls or other vertical members list, lean or buckle to such an extent that a plumb line passing through the center of gravity does not fall inside the middle one-third (1/3) of the base;

10. Whenever the building or structure, exclusive of the foundation, shows thirty-three percent (33%) or more damage or deterioration of its supporting member or members, or fifty percent (50%) damage or deterioration of its nonsupporting members, enclosing or outside walls, or coverings;

11. Whenever the building or structure has been so damaged by fire, wind, earthquake or flood, or has become so dilapidated or deteriorated as to become: (a) an attractive nuisance to children; (b) a harbor for vagrants, criminals or immoral persons; or (c) as to enable persons to resort thereto for the purpose of committing unlawful or immoral acts;

12. Whenever any building or structure has been constructed, exists or is maintained in violation of any specific requirement or prohibition applicable to such building or structure provided by this title;

13. Whenever any building or structure which, whether or not erected in accordance with all applicable laws and ordinances, has in any nonsupporting part, member or portion less than fifty percent (50%), or in any supporting part, member or portion less than sixty-six percent (66%) of the: (a) strength; (b) fire-resisting qualities or characteristics; or (c) weather-resisting qualities or characteristics required by law in the case of a newly constructed building of like area, height and occupancy in the same location;

14. Whenever a building or structure, used or intended to be used for dwelling purposes, because of inadequate maintenance, dilapidations, decay, damage, faulty construction or arrangement, inadequate light, air or sanitation facilities, or otherwise, is determined by the Health Officer to be unsanitary, unfit for human habitation or in such a condition that is likely to cause sickness or disease;

15. Whenever any building or structure, because of obsolescence, dilapidated condition, deterioration, damage, inadequate exits, lack of sufficient fire-resistive construction, faulty electric wiring, gas connections or heating apparatus, or other cause, is determined by the Fire Chief to be a fire hazard;

16. Whenever any building or structure is in such a condition as to constitute a public nuisance under common law or equity jurisprudence; and/or

17. Whenever any portion of a building or structure remains on a site after the demolition or destruction of the building or structure or whenever any building or structure is abandoned for a period in excess of six (6) months so as to constitute such building or portion thereof an attractive nuisance or hazard to the public.

"Department" means the City of Long Beach Department of Community Development.

"Director" means the Director of Community Development for the City of Long Beach Department of Community Development or a duly authorized representative.

"Fire Chief" means the Fire Chief of the City of Long Beach Fire Department or a duly authorized representative.

"Fire Code Official" means the Fire Marshal for the City of Long Beach Fire Department or a duly authorized representative designated by the Fire Chief.

"Foundation-only permit" is a building permit issued for that portion of a building which constitutes the footings for the building and which may, subject to the approval of the Building Official, include those portions of the building below the grade level.

"Nuisance" means:

1. Any public nuisance known at common law or in equity jurisprudence or as declared by ordinance;

2. Any attractive nuisance which may prove detrimental to children whether in a building, on the premises of a building, or upon an unoccupied lot; this includes any abandoned structure, basement or excavation; any structurally unsound fence or structure; any lumber, trash, fence, debris or vegetation which may prove a hazard for inquisitive minors;

3. Whatever is dangerous to human life or is detrimental to health;

4. Overcrowding a room with occupants;

5. Insufficient ventilation or illumination;

6. Inadequate or unsanitary sewage or plumbing facilities;

7. Uncleanliness, when so determined by the Health Officer;

8. Whatever renders air, food or drink unwholesome or detrimental to the health of human beings when so determined by the Health Officer; and/or

9. Dangerous or substandard buildings or conditions as defined in this title.

"Occupancy" means the purpose for which a building, or part of a building, is used or intended to be used. The term "occupancy" as used in this title shall include the room housing that occupancy and the space immediately above a roof or structure if used or intended to be used for other than a shelter.

"Permittee" means the person, firm or corporation authorized to obtain a permit pursuant to Subsection 18.04.070.A of this title.

"Police Chief" means the Police Chief of the City of Long Beach Police Department or a duly authorized representative.

"State" means the State of California.

"Substandard building" means any building or other structure, or the premises on which the same is located, where any of the following conditions exist to an extent which, in the opinion of the Building Official or Fire Code Official, endangers the life, limb, health, property, safety or welfare of the occupants thereof, or of the public:

1. Inadequate sanitation. "Inadequate sanitation" shall include, but not be limited to, the following:

a. Lack of or improper water closet, lavatory, bathtub or shower in a dwelling unit;

b. Lack of or improper water closets, lavatories and bathtubs or showers per number of guests in a hotel;

c. Lack of or improper kitchen sink;

d. Lack of hot and cold running water to plumbing fixtures in a hotel;

e. Lack of hot and cold running water to plumbing fixtures in a dwelling unit;

f. Lack of adequate heating;

g. Lack of, or improper operation of, required ventilating equipment;

h. Lack of minimum amounts of natural light and ventilation required by this title;

i. Room and space dimensions less than required by this title;

j. Lack of required electrical lighting;

k. Dampness of habitable rooms;

l. Infestation of insects, vermin or rodents as determined by the Health Officer;

m. General dilapidation or improper maintenance;

n. Lack of connection to required sewage disposal system; and/or

o. Lack of adequate garbage and rubbish storage and removal facilities as determined by the Health Officer.

2. Structural hazards. "Structural hazards" shall include, but not be limited to, the following:

a. Deteriorated or inadequate foundations;

b. Defective or deteriorated flooring or floor supports;

c. Flooring or floor supports of insufficient size to carry imposed loads with safety;

d. Members of walls, partitions or other vertical supports that split, lean, list or buckle due to defective material or deterioration;

e. Members of walls, partitions or other vertical supports that are of insufficient size to carry imposed loads with safety;

f. Members of ceilings, roofs, ceiling and roof supports, or other horizontal members which sag, split or buckle due to defective material or deterioration;

g. Members of ceilings, roofs, ceiling and roof supports, or other horizontal members that are of insufficient size to carry imposed loads with safety;

h. Fireplaces or chimneys which list, bulge or settle due to defective material or deterioration; and/or

i. Fireplaces or chimneys which are of insufficient size or strength to carry imposed loads with safety.

3. Nuisance. Any "nuisance" as defined in this title.

4. Hazardous wiring. All wiring except that which conformed with all applicable laws in effect at the time of installation if it is currently in good and safe condition and working properly.

5. Hazardous plumbing. All plumbing except that which conformed with all applicable laws in effect at the time of installation and which has been maintained in good condition or which may not have conformed with all applicable laws in effect at the time of installation but is currently in good and safe condition and working properly and which is free of cross connections and siphonage between fixtures.

6. Hazardous mechanical equipment. All mechanical equipment, including vents, except that which conformed with all applicable laws in effect at the time of installation and which has been maintained in good and safe condition, or which may not have conformed with all applicable laws in effect at the time of installation but is currently in good and safe condition and working properly.

7. Faulty weather protection, which shall include, but not be limited to, the following:

a. Deteriorated, crumbling or loose plaster;

b. Deteriorated or ineffective water proofing of exterior walls, roof, foundations or floors, including broken windows or doors;

c. Defective or lack of weather protection for exterior wall coverings, including lack of paint, or weathering due to lack of paint or other approved protective covering; and/or

d. Broken, rotted, split or buckled exterior wall coverings or roof coverings.

8. Fire hazard. Any building or portion thereof, device, apparatus, equipment, combustible waste or vegetation which, in the opinion of the Fire Chief, is in such a condition as to cause a fire or explosion or provide a ready fuel to augment the spread and intensity of fire or explosion arising from any cause.

9. Faulty materials of construction. All materials of construction except those which are specifically allowed or approved by this title, and which have been adequately maintained in good and safe condition.

10. Hazardous or unsanitary premises. Those premises on which an accumulation of weeds, vegetation, junk, dead organic matter, debris, garbage, offal, rat harborages, stagnant water, combustible materials and similar materials or conditions constitute fire, health or safety hazards.

11. Inadequate maintenance. Any building or portion thereof which is determined to be dangerous as defined in Section 18.02.020.

12. Inadequate exits. All buildings or portions thereof not provided with adequate exit facilities as required by this title except those buildings or portions thereof whose exit facilities conformed with all applicable laws at the time of their construction and which have been adequately maintained and increased in relation to any increase in occupant load, alteration or addition, or any change in occupancy.

When an unsafe condition exists through lack of or improper location of exits, additional exits may be required to be installed.

13. Inadequate fire protection or firefighting equipment. All buildings or portions thereof which are not provided with the fire-resistive construction or fire extinguishing systems, or equipment required by this title, except those buildings or portions thereof which conformed with all applicable laws at the time of their construction and whose fire-resistive integrity and fire extinguishing systems or equipment have been adequately maintained and improved in relation to any increase in occupant load, alteration or addition, or any change in occupancy.

14. Improper occupancy. All buildings or portions thereof occupied for living, sleeping, cooking or dining purposes which are not designed or intended to be used for such occupancies.

15. Inadequate structural resistance to horizontal forces.

"Title" or "this title" means Title 18 of the Long Beach Municipal Code.

"Uniform Housing Code" or "UHC" or "Housing Code" means the code adopted in Chapter 18.45 of this title. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.03 ADMINISTRATION AND ENFORCEMENT

18.03.010 Department of Community Development.

A. General. There is established in the City a Department known and designated as the Department of Community Development. In addition to the duties imposed upon said Department by the City Charter and other ordinances of the City, the Building and Safety Bureau of said Department is designated to enforce all of the provisions of State law applicable to the erection or construction of buildings or structures pursuant to Section 17960 of the California Health and Safety Code, except such provisions relating to maintenance, sanitation, occupancy and use which affect the health and welfare of occupants and which shall be designated by the City Manager as the responsibility of the City Health Officer or a duly authorized representative.

B. Appointment. The City Manager shall, upon recommendation of the Director, appoint the Building Official as shall be required and shall be authorized from time to time by ordinance.

C. Deputies. The City Manager shall, upon recommendation of the Director, appoint such officers, inspectors, plans examiners and other employees as shall be required and shall be authorized from time to time by ordinance.

D. Certification. All construction inspectors, plans examiners and Building Official as defined in Sections 18949.25 through 18949.27 of the California Health and Safety Code shall obtain certification when required by Section 18949.28 of the California Health and Safety Code from a recognized state, national, or international association, as determined by the City. The area of certification shall be closely related to the primary job function, as determined by the City.

(ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

Editor's note—ORD-25-0019 amended the title of § 18.03.010 to read as herein set out. The former § 18.03.010 was entitled "Department of Development Services."

18.03.020 Duties and powers of the Building Official.

A. General. The Building Official is hereby authorized and directed to enforce the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State and to make all plan examinations and inspections pursuant to the provisions of each such regulation. The Building Official shall also perform such other duties relating to the functions of the Department as may be required of him or her by general law, or by ordinance. For such purpose, the Building Official shall have the powers of a police officer. Any order of the City requiring alterations or repairs to any building shall be issued only by authorization of the Building Official. The Building Official shall have the authority to render interpretations of this title and to adopt policies and procedures in order to clarify the application of its provisions. Such interpretations, policies and procedures shall be in compliance with the intent and purpose of this title. Such policies and procedures shall not have the effect of waiving requirements specifically provided for in this title, municipal code or other ordinances of the City, or laws and statutes of the State.

B. Applications and permits. The Building Official shall receive applications, examine construction documents and issue permits for the erection, addition, alteration, demolition and moving of buildings and structures, inspect the premises for which such permits have been issued and enforce compliance with the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State.

For applications for reconstruction, rehabilitation, repair, alteration, addition and other improvement of existing buildings or structures located in flood hazard areas, the Building Official shall determine if the proposed work constitutes substantial improvements or repair of substantial damage. Where the Building Official determines that the proposed work constitutes substantial improvement or repair of substantial damage, and where required by this title, municipal code or other ordinances of the City, or laws and statutes

of the State, the Building Official shall require the building to meet the requirements of Section 1612 and Appendix G of the California Building Code adopted in Chapter 18.40 or Section R306 of the California Residential Code adopted in Chapter 18.41.

C. Notices and orders. The Building Official shall issue all necessary notices or orders to ensure compliance with the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State. Every such notice or order shall be in writing, addressed to the owner, agent or person responsible for the structure or premises in which such violations or unsafe condition exists and shall specify the date or time when such notice or order shall be complied with, which time shall allow a reasonable period in which such notice or order can be complied with by the person, firm or corporation receiving such notice or order in the judgment of the Building Official. No person, firm or corporation shall refuse, fail or neglect to comply with any such notice or order issued by the Building Official.

D. Inspections. The Building Official shall make all of the required inspections, or the Building Official shall have the authority to accept reports of inspection by approved agencies or individuals. Reports of such inspection shall be in writing and be certified by a responsible officer of such approved agency or by the responsible individual. The Building Official is authorized to engage such expert opinion as deemed necessary to report upon unusual technical issues that arise.

E. Identification. The Building Official shall carry proper identification when inspecting structures or premises in the performance of duties under this title.

F. Right of entry. Where it is necessary to make an inspection to enforce the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State, or where the Building Official has reasonable cause to believe that there exists in a structure or upon a premises a condition which is contrary to or in violation of the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State which makes the structure or premises unsafe, dangerous or hazardous, the Building Official is authorized to enter the structure or premises at reasonable times to inspect or to perform the duties imposed by this title, provided that if such structure or premises be occupied that credentials be presented to the occupant and entry requested. If such structure or premises is unoccupied, the Building Official shall first make a reasonable effort to locate the owner or other person having charge or control of the structure or premises and request entry. If entry is refused, the Building Official shall have recourse to the remedies provided by law to secure entry.

When the Building Official has first obtained a proper inspection warrant or other remedy provided by law to secure entry, no owner or occupant or any other person having charge, care or control of any building or premises shall fail or neglect, after proper demand is made as provided in this section, to properly permit entry therein by the Building Official for the purpose of inspection and examination pursuant to this title.

G. Authority to require exposure of work. Whenever any work on which called inspections are required as enumerated in Chapter 18.07 is covered or concealed by additional work without first having been inspected, the work shall be exposed for inspection upon written notice by the Building Official. The work of exposing and recovering shall not entail expense to the City.

H. Authority to stop work. Whenever any construction work is being done contrary to the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State enforced by the Building Official, the Building Official shall have the authority to issue a written notice to the responsible party to stop work on that portion of the work on which the violation has occurred. The notice shall state the nature of the violation and no work shall be done on that portion until the violation has been rectified and approval obtained from the Building Official.

I. Authority to stop use or occupancy. Whenever any portion of a building is loaded in excess

for which it was constructed, or it houses a use or occupancy other than that for which it was constructed, or is determined to be an unsafe building or structure pursuant to Chapter 18.20, or there is an encroachment upon any required court, yard or easement, the Building Official shall have the authority to order by written notice that such violation be discontinued.

The written notice shall state the nature of the violations and shall fix a time for the abatement thereof. If the violations have not been abated by the expiration of the fixed time, the Certificate of Occupancy shall thereupon be canceled.

J. Authority to disconnect electrical service. Whenever any electrical installation regulated by the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State is found to be defective, the Building Official shall have the authority to disconnect or to order the discontinuance of electrical service to such installation until the installation has been made safe, and any person, firm, corporation, political subdivision or governmental agency ordered to discontinue such electrical service shall do so within twenty four (24) hours or as determined by the Building Official after the receipt of such notice and shall not reconnect such service or allow the same to be reconnected until notified to do so by the Building Official.

K. Authority to disconnect utilities. Whenever any mechanical installation regulated by the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State is found to be defective that may pose an immediate hazard to life or property, the Building Official shall have the authority to disconnect or to order the discontinuance of fuel-gas utility service, or energy supplies, to the building, structure, premises or equipment in case of emergency. The Building Official shall, whenever possible, notify the serving utility, the owner and occupant of the building, structure or premises of the decision to disconnect prior to taking such action, and shall notify such serving utility, owner and occupant of the building, structure or premises in writing of such disconnection immediately thereafter and shall not reconnect such service or allow the same to be reconnected until such installation has been made safe and was notified to do so by the Building Official.

L. Authority to condemn equipment. Whenever any equipment regulated by the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State has become hazardous to life, health, or property, the Building Official shall have the authority to condemn equipment when such equipment cannot be restored to a condition of safety or be dismantled or removed from its present location. The Building Official shall provide written notice to the owner or occupant of the building, structure, premises or equipment of such order and shall fix a time limit for compliance. No person shall use or maintain the defective equipment after receiving such notice.

M. Authority to discontinue supply gas or water. Whenever any unsanitary conditions exist or that any construction or work regulated by the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State is dangerous, unsafe, unsanitary or a menace to life, health or property or is in violation of the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State, the Building Official, upon determining such information to be fact, shall have the authority to order any person, firm or corporation using or maintaining any such condition, or responsible for the use or maintenance thereof, to discontinue the use or the maintenance thereof or to repair, alter, change, remove or demolish the same as the Building Official may consider necessary for the proper protection of life, health or property; and in the case of any gas piping, gas appliance or water piping and any water using fixture or device, may order any person, firm or corporation supplying gas or water to such piping, appliance, fixture or device to discontinue supplying gas or water thereto until such piping, appliance, fixture or device is made safe to life, health and property.

N. Authority to modify grading operation. The Building Official is authorized to require that

grading operations and project designs be modified if delays occur which incur weather-generated problems not considered at the time the permit was issued.

O. In post-disaster events, the Building Official may deputize private citizens who are qualified to provide damage assessment of buildings and structures on behalf of the City. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.03.030 Reports, records and fees.

A. Reports. When requested, the Building Official shall submit a report to the Director, City Manager, and/or elected City officials covering the work of the Building and Safety Bureau during the preceding period. The Building Official shall have charge of, and be responsible for, the drafting of recommendations regarding periodic revisions and amendments to the building, residential, electrical, plumbing, mechanical, housing, energy, green building standards, housing, existing building, historical building, and WUI regulations of this title, municipal code or other ordinances of the City, or laws and statutes of the State.

B. Records. The Building Official shall keep official records of applications received, permits and certificates issued, fees collected, reports of inspections, and notices and orders issued. Such records shall be retained in the official records for the period required for retention of public records.

C. Fees. The Building Official shall keep a permanent, accurate account of all fees and other monies collected and received under this title, the names of the persons upon whose account the same were paid, the date and amount thereof, together with the location of building or premises to which they relate. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.03.040 Liability.

The Building Official, members of the Board of Appeals or employees charged with the enforcement of the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State, while acting for the City in good faith and without malice in the discharge of the duties required by this title or other pertinent law or ordinance, shall not thereby be rendered liable personally and are hereby relieved from personal liability for any damage accruing to persons or property as a result of any act or by reason of an act or omission in the discharge of official duties. Any suit instituted against the Building Official, officer, plans examiner, inspector or other employee because of an act performed by the Building Official, officer, plans examiner, inspector or other employee in the lawful discharge of duties and under the provisions of this title shall be defended by legal representative of the City until the final termination of the proceedings. The Building Official or any subordinate shall not be liable for cost in any action, suit or proceeding that is instituted in pursuance of the provision of this title.

This title shall not be construed to relieve from or lessen the responsibility of any person, firm or corporation owning, operating or controlling any building or structure for any damages to persons or property caused by defects, nor shall the enforcing agency or the City be held as assuming any such liability by reason of the plans examinations or inspections authorized by this title or any permits or certificates issued under this title. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.03.050 Modifications.

A. General. Whenever there are practical difficulties involved in carrying out the provisions of this title, the Building Official shall have the authority to grant modifications for individual cases, upon the receipt of a request in writing by the owner or owner's authorized agent on a form furnished by the Building Official for that purpose with the justifiable cause of the difficulties clearly identified, provided the Building Official shall first find that a special individual reason makes the

strict letter of this title impractical, the modification is in compliance with the intent and purpose of this title, and that such modification does not lessen health, accessibility, life and fire safety, or structural requirements. The details of action granting or denying modifications shall be recorded and entered in the files of the Building and Safety Bureau. A written application shall be submitted together with a fee set forth in Section 18.06.160.

The Building Official shall not grant modifications to any provisions required in flood hazard areas as established in Section 1612.3 and Appendix G of the California Building Code adopted in Chapter 18.40 or Section R306 of the California Residential Code adopted in Chapter 18.41 unless a determination has been made that:

1. A showing of good and sufficient cause that the unique characteristics of the size, configuration or topography of the site render the elevation standards of Section 1612 and Appendix G of the California Building Code adopted in Chapter 18.40 or Section R306 of the California Residential Code adopted in Chapter 18.41 inappropriate.

2. A determination that failure to grant the modification would result in exceptional hardship by rendering the lot undevelopable.

3. A determination that the granting of a modification will not result in increased flood heights, additional threats to public safety, extraordinary public expense, cause fraud on or victimization of the public, or conflict with existing laws and ordinances.

4. A determination that the modification is the minimum necessary to afford relief, considering the flood hazard.

5. Submission to the applicant of written notice specifying the difference between the design flood elevation and elevation to which the building is to be built, stating that the cost of flood insurance will be commensurate with the increased risk resulting from the reduced floor elevation, and stating that the construction below the design flood elevation increases risks to life and property.

B. Expiration. The rights and privileges granted by the Building Official shall be voided if the permit or plans examination expires under any of the conditions specified in Sections 18.04.060 or 18.05.060. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.03.060 Alternate materials, design and methods of construction and equipment.

A. General. The provisions of this title are not intended to prevent the installation of any materials or to prohibit any design or method of construction not specifically prescribed by this title, provided that any such alternative has been approved by the Building Official. The Building Official shall have the authority to approve an alternative material, design or method of construction where the Building Official finds that the proposed design is satisfactory and complies with the intent of the provisions of this title, and that the material, method or work offered is, for the purpose intended, at least the equivalent of that prescribed in this title in quality, strength, effectiveness, fire resistance, durability and safety. The Building Official shall require that sufficient evidence or proof be submitted to substantiate any claims that may be made regarding its use. The details of action either granting or denying alternatives shall be recorded and entered in the files of the Building and Safety Bureau. A written application shall be submitted together with a fee set forth in Section 18.06.160.

B. Research reports. Supporting data, where necessary to assist in the approval of materials or assemblies not specifically provided for in this title, shall consist of valid research reports from approved sources.

C. Test. Whenever there is insufficient evidence of compliance with the provisions of this title, or evidence that a material or method does not conform to the requirements of this title, or in order to substantiate claims for alternative materials or methods, the Building Official shall have the authority to require tests as evidence of compliance to be made at no expense to the City. Test methods shall be as specified by this title or by

other recognized test standards. In the absence of recognized and accepted test methods, the Building Official shall approve the test procedures. Tests shall be performed by an approved agency. Reports of such test shall be retained by the Building Official for the period required for retention of public records.

D. Expiration. The rights and privileges granted by the Building Official shall be voided if the permit or plans examination expires under any of the conditions specified in Sections 18.04.060 or 18.05.060. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.04 PERMITS

18.04.010 Permits required.

A. Building permits. No person, firm or corporation shall erect, construct, enlarge, alter, repair, remodel, move, remove, improve, convert or demolish any building or part of a building or structure, or change the character or occupancy or use of any building or structure, or part of a building or structure, in the City without first obtaining a permit covering such work from the Building Official.

B. Grading permits. No person, firm or corporation shall commence or perform any grading, and no person shall import or export any earth materials to or from any grading site, without first having obtained a permit therefore from the Building Official. Any grading project involving more than one hundred (100) cubic yards of excavation and involving an excavation in excess of five (5) feet in vertical depth at its deepest point measured from the original ground surface shall be done by a State of California licensed contractor who is licensed to perform the work described herein. A separate permit shall be required for each grading site. One (1) permit may include the entire grading operation at that site, however.

C. Electrical permits. No new electrical installation shall be made nor any alteration or addition performed to any existing wiring, nor shall any wiring for the placing or installation of any electric light, power or heating device, or any apparatus which generates, transmits, transforms or utilizes electricity operating at a voltage exceeding twenty-five (25) volts between conductors or capable of supplying more than fifty (50) watts, be made without first obtaining an electrical permit. A separate permit shall be obtained for the electrical wiring or installation in each separate building or structure.

D. Plumbing permits. No person, firm or corporation shall construct, install or alter any plumbing, water piping, gas piping, water heater, water heater vents, water treating equipment, or any appliance or device regulated by this title without obtaining a plumbing permit approving the proposed quality and character of workmanship and materials. Where a building is demolished or removed from its site, a permit and inspection is required to verify that the building sewer, water and gas service is properly capped to the satisfaction of the Building Official. A separate permit shall be obtained for the plumbing installation in each separate building or structure.

E. Mechanical permits. No person, firm or corporation shall install, alter, reconstruct or repair any heating, ventilating, cooling, or refrigeration equipment unless a permit therefore has been obtained from the Building Official except as otherwise provided in this title. A permit shall be obtained for all heating, ventilating, cooling, or refrigeration equipment, moved with, or installed in, any relocated building. A separate permit shall be obtained for the equipment installed in each separate building or structure.

F. Combination permits. A single combined permit may be issued for the construction of any one- or two-family dwelling and related accessory building and structure, or additions or alterations thereto, which includes all building, electrical, plumbing, gas, mechanical, heating, ventilating and air conditioning work.

G. Sign permits. No person, firm or corporation shall construct any signs and billboards without first obtaining a permit covering such work from the Building Official.

No person, firm or corporation shall hang, suspend or otherwise affix any sign, street banner, pole banner, flag, pennant or street decoration on any street light pole, traffic signal pole or over and above any street unless a permit to do so is first obtained from the City Manager. Permits issued pursuant to this section shall be in accordance with the provisions of Chapter 16.55 of Title 16, the City's policy on City sponsorship, corporate recognition and advertising, as adopted on July 23, 1996, as amended from time to time, and any guidelines that may from time to time be approved by the City Council.

EXCEPTION: The above provisions shall not apply to any sign or advertising matter lettered upon the surface of any awning, provided the awning is securely attached to a building and is not less than seven (7) feet above the sidewalk level immediately below.

H. Temporary permits. Before commencing the construction of any work for temporary structures or uses including, but not limited to, reviewing stands, bleachers, tents, sheds, canopies or fences used for the protection of the public around and in conjunction with construction work, and other miscellaneous structures, a temporary permit authorizing such work shall be obtained therefore from the Building Official. Temporary permit may be restricted in the following conditions:

1. Application for permit. Except for canopies or fences used for the protection of the public around and in conjunction with construction work, application for permit shall be filed with and approved by the Building Official prior to the construction, erection or operation of any device, structure, or any work regulated by this title for temporary structure or use.

2. Time limit. Such construction shall be occupied or used only for the period set forth in Subsection 18.04.060.A.

3. Conformance. Temporary structures and uses shall conform to the structural strength, fire safety, means of egress, accessibility, light, ventilation and sanitary requirements of this title as necessary to ensure public health, safety and general welfare. Such temporary structures and temporary uses need not comply with the type of construction or fire-resistive time periods required by this title.

4. Temporary power. The Building Official is authorized to give permission to temporarily supply and use power in part of an electric installation before such installation has been fully completed and the final certificate of completion has been issued. The part covered by the temporary certificate shall comply with the requirements specified for temporary lighting, heat or power in the California Electrical Code adopted in Chapter 18.42.

5. Inspection. Notwithstanding Chapter 18.07 to the contrary, request for inspection must be received at least five (5) days prior to public use or occupancy.

6. Removal after expiration. All temporary construction or installations shall be demolished or removed within five (5) days after the expiration of the permit.

7. Termination of approval. The Building Official is authorized to terminate such permit for a temporary structure or use and to order the temporary structure or use to be discontinued.

I. Other permits.

1. Other permits must be obtained as required pursuant to any other provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State.

2. No person, firm or corporation shall commence moving of buildings or structures in the City without first complying with the provisions in Chapter 18.60 and obtaining a moving permit covering such work from the Building Official.

3. No person, firm or corporation shall commence drilling or redrilling for and the production of petroleum, abandonment of wells and the removal of all equipment related to the well, or maintain and operate any wells for petroleum operation without first complying with the provision in Title 12 and obtaining a permit covering such work from the Building Official. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.04.020 Work exempt from permit.

Exemption from the permit requirements of this title shall not be deemed to grant authorization for any work to be done in any manner in violation of the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State. Except for work undertaken to correct conditions determined to be substandard, nonconforming, dangerous or a nuisance under the provisions of Chapter 18.20, permits are not required for the following:

A. Permits not required. Neither building, grading, subtrade or temporary permits of this title are required for the following:

1. Buildings, structures, or utilities placed in public streets, alleys, sidewalks, and other public right of ways as defined in Section 14.08.010 and regulated in Chapter 14.48.

2. Buildings, structures, or utilities under the auspices of and owned or controlled by the federal government, the State of California, the County of Los Angeles, or by a public school district.

3. Work done by employees of the City on City-owned or leased buildings, structures, or utilities when justifiable cause is demonstrated and approved by the Building Official.

4. A temporary shed or other structure incidental to and for work authorized by a valid building, grading or subtrade permit. Such buildings and structures must be removed upon expiration of the permit or completion of work covered by the permit.

B. Building permits not required. Building permits are not required for any of the following, provided the work is not in violation of the Zoning Regulations:

1. Where the work regulated by this title is valued at one thousand dollars ($1,000.00) or less, unless it affects the fire life-safety, structural stability or required accessible route of a building or structure, or public safety, or is done to make a building conform to the requirements of this title for a change in occupancy or use.

2. One story detached accessory structures used as tool and storage sheds, children's playhouses and similar uses, provided that the building or structure is accessory to a dwelling unit; it does not exceed one hundred twenty (120) square feet in area; and complies with maximum height requirements of the zoning regulations. A permit shall be obtained for any work related to the installation of plumbing, electrical, or mechanical items.

3. Isolated buildings or structures not larger in area than sixteen (16) square feet in size, including roof projections, and not more than eight (8) feet in height, if separated by a distance of twenty (20) feet or more.

4. Fences constructed of materials other than concrete, masonry, brick, heavy timber or other similar materials that are not over seven (7) feet in height above grade. Fences constructed partially or in whole of concrete, masonry, brick, heavy timber or other similar materials that are not over four (4) feet in height above grade. Fences constructed without a building permit per this subsection shall also comply with the height limits of Section 21.46.020.

5. Retaining walls or planter boxes that are not over four (4) feet in height measured from the bottom of the footing to the top of the wall, unless supporting a surcharge or sloping earth, or impounding flammable liquids. This exemption shall not apply to retaining walls of any height built on slopes steeper than one (1) unit vertical in five (5) units horizontal (20% slope).

6. Sidewalks and driveways not more than thirty (30) inches above adjacent grade, not over any basement or story below, and not part of a required accessible route.

7. Application of hot or cold paint on a roof of a building or structure.

8. Repair of roofing not in excess of one hundred (100) square feet on an existing building or structure within any twelve (12) month period.

9. Painting, papering, carpeting and similar finish work that are not required to comply with accessibility regulations.

10. Installation of ceramic tile on floor, countertops and walls less than forty-eight (48) inches in height.

11. Replacement of broken or damaged ceramic tile in an existing installation.

12. Plaster repairing not in excess of one hundred (100) square feet of interior or exterior plaster.

13. Nonfixed and movable fixtures, cases, racks, counters and partitions not over five (5) feet nine (9) inches in height.

14. Exhibits, booths, partitions and display counters for temporary use not exceeding thirty (30) days in conjunction with an exhibit or show and not exceeding twelve (12) feet in height above the floor.

15. Window awnings in one- or two-family dwellings and related accessory building or structure supported by an exterior wall that do not project more than fifty-four (54) inches from the exterior wall and do not require additional support.

16. Swimming, bathing and wading pools not over eighteen (18) inches in depth, provide a distance from the pool to the property lines and buildings or structures not less than the depth of the pool, and not having a surface area exceeding two hundred fifty (250) square feet; there is no electrical or plumbing installation.

17. Prefabricated swimming pools accessory to a one- or two-family dwelling that are less than eighteen (18) inches deep, do not exceed five thousand (5,000) gallons and are installed entirely above ground; it contains no plumbing, electrical, or mechanical installations regulated by this title.

18. Veneer less than four (4) feet in height.

19. Waterproof pointing of joints in masonry or veneer, also cleaning with detergents which are not injurious to clothing or skin of persons and are not removed by liquid washing, provided work is done from safely enclosed scaffolding which will collect any dust, debris or dropped tools and materials in use.

20. Prefabricated outdoor tents or canopy structures for temporary use not exceeding one hundred eighty (180) days, provided such tents or canopies are accessory to a one- or two-family dwelling on the site; and is not in violation of Title 9 Public Peace, Morals and Welfare, Section 9.65.050 Prohibited Canopy Structure, or the California Fire Code adopted in Chapter 18.48.

21. Shade cloth structures constructed for nursery or agricultural purposes, not including service system.

22. Decks not exceeding two hundred (200) square feet in area, that are not more than thirty (30) inches above grade at any point, are not attached to a dwelling and do not serve the exit door.

C. Grading permits not required. Grading permits are not required for any of the following:

1. An excavation which: (a) is less than two (2) feet in depth, or (b) which does not create a cut slope greater than five (5) feet in height and steeper than one (1) unit vertical in two (2) units horizontal (50% slope). This exception shall not apply to cut which exceeds fifty (50) cubic yards or which changes the existing drainage pattern.

2. A fill less than one (1) foot in depth and placed on natural terrain with a slope flatter than one (1) unit vertical in ten (10) units horizontal (10% slope). This exception shall not apply when the fill exceeds fifty (50) cubic yards or when the fill changes the existing drainage pattern.

3. Excavations for caissons or piles under buildings or structures authorized by valid building permits.

4. Excavations for basements, footings, caissons, piles, swimming pools or underground structures that are authorized by valid building permits.

5. Excavations for wells or tunnels or utilities, which do not provide vertical or lateral support for buildings, or adversely impact the safety or stability of private or public properties.

6. Excavation in an isolated, self-contained area if the Building Official finds that by reason of such isolation and self-containment no danger to private or public property can now or thereafter result from grading operations.

7. Refuse disposal sites controlled by other regulations of local, State or federal departments or agencies.

8. Cemetery graves.

9. Exploratory excavation performed under the direction of a registered design professional.

10. Mining, quarrying, excavation, processing or stockpiling rock, sand, gravel, aggregate or clay controlled by other regulations of local, State or federal departments or agencies, provided such operations do not affect the lateral support of, or significantly increase stresses in, soil on adjoining properties.

D. Electrical permits not required. Electrical permits are not required for any of the following:

1. Electric wiring expressly declared to be exempt from the provisions of this title by any other section thereof.

2. Wiring for temporary theater sets on the theater stages or temporary motion picture or television sets on any property belonging to or under the control of the City, privately owned studios, theaters, or similar locations designed for that usage.

3. Installation of any portable motor or other portable appliance energized by means of a cord or cable having an attachment plug end, when that cord or cable is permitted by this title.

4. Festive temporary decorative lighting in dwelling occupancies only, for a period not to exceed ninety (90) days.

5. Repair or replacement of electrodes or transformers of the same size and capacity for signs or marquees, except for the retrofitting of lighting and exit fixtures that are part of a required emergency lighting system.

6. The following installation and electrical wiring:

a. Non-required signaling circuits supplied by an approved Class 2 limited power source, capable of supplying not more than thirty (30) volts and one hundred (100) volt-amperes.

b. Non-required communication circuits which have the power limited in accordance with Article 725 of the California Electrical Code adopted in Chapter 18.42.

c. Non-required amplifier output circuits which are permitted by Article 640 of the California Electrical Code adopted in Chapter 18.42 to employ Class 2 or Class 3 wiring.

d. Reinstallation of attachment wall plug receptacles or wall switches but not the outlet therefore.

e. Repair or replacement of current carrying parts or any switch, contactor or control device.

Provided the wiring for any of the above items is not located in any of the following locations or conditions:

i. Area classified as "hazardous" under Article 500 of the California Electrical Code adopted in Chapter 18.42.

ii. Appurtenant to a required fire alarm system as classified under Article 760 of the California Electrical Code adopted in Chapter 18.42.

iii. Penetrating any fire-resistive wall or floor system.

iv. In a plenum, duct or other space used for environmental air including access floors.

7. Any similar minor repair or replacement determined by the Building Official not to involve any hazard to life or property.

8. Repair of incandescent lighting fixtures in one- or two-family dwelling and related accessory building and structure.

9. Any electric wiring, except wiring located in an area classified as "hazardous" under Article 500 of the California Electrical Code adopted in Chapter 18.42 after the branch circuit distribution panelboards used exclusively to supply or interconnect equipment installed, owned, operated or maintained by a communication public utility and used exclusively for communication purposes, in the exercise of its communication public utility functions within the communication public utility controlled areas.

10. The replacement of defective smoke detectors in a one- or two-family dwelling and related accessory building and structure when the work is performed by a contractor with a valid contractor license issued by the State and a valid business license issued by the City.

11. The installation by Southern California Edison Company of radio-controlled relays on privately owned air conditioning equipment in the

company's program of energy conservation through electrical load management, entitled "Air Conditioner Cycling Program", provided that:

a. The relays shall be tested and labeled by Underwriters' Laboratories, Inc.,

b. The Building Official shall approve of specifications for the installation of relays, and

c. The relays shall be installed and maintained by Southern California Edison Company or its contractors.

12. Repair or replacement of cords or cables allowed by other sections of this title.

The provisions of the foregoing exceptions shall not apply to any repairs or replacements of electrical devices, apparatus, or appliances which were originally installed without a permit when such permit is required for the original installation, or when energized by, or which is a part of any hazardous or illegal wiring system.

E. Plumbing permits not required. Plumbing permits are not required for any of the following:

1. The stopping of leaks or the repair of defects in any plumbing, provided no new materials are used.

2. The repair of a water heater other than its vents, provided the water heater is not disconnected.

3. The replacement of exposed traps serving fixtures, provided approved traps are used and are properly installed.

4. The replacement of defective or unapproved ball cocks in water tanks, provided antisiphon ball cocks are used and properly installed.

5. The repair of defective or unapproved faucets serving sinks, lavatories and bathtubs, provided approved type faucets are used and are properly installed.

6. Any gas piping not more than six (6) feet in length between an approved gas outlet and any gas-fired appliance, provided that any such gas-fired appliance is in the same room as the gas outlet.

7. Any sewer located entirely in the public right-of-way and under the authority of the Department of Public Works or Department of Water.

8. A plumbing system, or part thereof, set up for exhibition purposes and has no connection with a water or drainage system; and is not in violation of any rules and regulations promulgated by the Department of Health and Human Services or the Department of Water.

F. Mechanical permits not required. Mechanical permits are not required for any of the following:

1. Any portable heating appliance.

2. Any portable ventilating equipment.

3. Any portable cooling unit.

4. Any steam, hot, or chilled water piping within any heating or cooling equipment regulated by this title.

5. Replacement or repair of any component part or assembly of an appliance which does not alter its original approval and complies with other applicable requirements of this title.

6. Any portable evaporative cooler.

7. Any refrigerating equipment that is a part of the equipment for which a permit has been issued pursuant to the requirements of this title.

8. Any unit refrigerating system.

G. Sign permits not required. Sign permits are not required if exempt under the provision of Section 21.44.500 of the Zoning Regulations. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.04.030 Permit applications.

A. Application for permit. To obtain a permit as required in Section 18.04.010, the applicant shall first file an application therefore in writing on a form furnished by the Building Official for that purpose and at the time of making the application for such a permit, pay the required fee as set forth in Chapter 18.06. One complete application for each permit shall be filed. A separate permit shall be obtained for each building or structure, except where a combination permit is allowed pursuant to Subsection 18.04.010.F. Every such application shall, when applicable:

1. Identify and describe the work to be covered by the permit for which application is made.

2. Describe the land on which the proposed work is to be done by legal description, street address or similar description that will readily identify and definitely locate the proposed building or work.

3. Indicate the use and occupancy for which the proposed work is intended.

4. Be accompanied by construction documents and other information as required in Chapter 18.05.

5. State the valuation of the proposed work.

6. Be signed by the applicant or the applicant's authorized agent.

7. Give such other data and information as required by the Building Official.

8. State the estimated quantities of excavation and fill, when applicable.

B. Action on application. The Building Official shall examine or cause to be examined applications for permits and amendments thereto within a reasonable time after filing. If the application or the construction documents do not conform to the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State, the Building Official shall reject such application in writing, stating the reasons therefore. If the Building Official is satisfied that the proposed work conforms to the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State applicable thereto, the Building Official shall issue a permit pursuant to Section 18.04.040.

C. Time limitation of application. An application for a permit for any proposed work shall be deemed to have been abandoned after the date of filing, unless such application has been pursued in good faith and plans examination have not expired pursuant to Section 18.05.060 or a permit has been issued and have not expired pursuant to Section 18.04.060. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.04.040 Permit issuance.

A. Issuance. When the Building Official determines that the proposed work conforms to the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State applicable thereto, including receiving approval from other departments or agencies in the City that regulate such proposed work, and that the fees and charges as set forth Chapter 18.06 and other liens, costs, and/or fees due to the City have been paid, the Building Official shall issue a permit therefore to the permittee meeting the requirement of Section 18.04.070.

EXCEPTIONS: The Building Official shall have the authority to withhold the issuance of permits under the following circumstances:

1. Harbor District. No permit shall be issued for the construction, extension, alteration, improvement, erection, remodeling or repair of any pier, slip, basin, wharf, dock or other harbor structure of any building or structure within the Harbor District, unless the Board of Harbor Commissioners has first granted permission authorizing such work to be done as provided in the charter of the City.

2. Marinas. No permit shall be issued for the construction, extension, alteration, improvement, erection, remodeling or repair of any pier, slip, basin, wharf, dock or other marina structure or any building or structure within the Alamitos Bay Marina, Downtown Shoreline Marina or Shoreline Harbor Marina unless the Marine Bureau has first granted permission authorizing such work to be done.

3. Model homes. No permit shall be issued for model homes unless the property owner has complied with all of the requirements of Subsection 20.08.160 of Title 20 and the Director of Public Works has granted permission authorizing such work to be done.

4. Excavation or improvements adjacent to public rights-of-way. No permit shall be issued for projects that make any excavation or improvements in, on, or under the surface of private property adjacent to any right-of-way, where lateral support to such right-of-way or improvements or property within such right-of-way is affected by such excavation pursuant to Subsection 14.08.020.A Item 3 unless such excavation com-

plies with the additional requirements specified in Article IV of Chapter 14.08 and the Director of Public Works has granted permission authorizing such work to be done.

B. Phased approval. The Building Official is authorized to issue a permit for the construction of foundations or any other part of a building or structure before the construction documents for the whole building or structure have been approved, provided that adequate information and detailed statements have been filed complying with all pertinent requirements of this title. The holder of such permit for the foundation or other parts of a building or structure shall proceed at the holder's own risk with the building operation and without assurance that a permit for the entire structure will be granted.

C. Placement of permit. The permit or copy shall be kept on the site of the work until the completion of the project. (ORD-25-0019 § 1(Exh. A), 2025; ORD-23-0052 § 1, 2023; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.04.050 Validity of permit.

A. Limit of authorization.

1. The issuance or granting of a permit is not an approval or an authorization of the work specified therein. A permit is merely an application for inspection, the issuance of which entitles the permittee to inspection of the work that is described therein.

2. The issuance of a permit based on construction documents and other data shall not prevent the Building Official from requiring the correction of errors in the construction documents and other data.

3. Permits issued under the requirements of this title shall not relieve the owner of responsibility for securing required permits for work to be done which is regulated by any other title, code or other ordinances of the City or laws and statues of the State.

4. If the work described by a valid permit is prohibited by a change in the municipal code, then such work may be completed only if the Building Official determines that both substantial liabilities have been incurred, and substantial work has been performed on site, in accordance with the terms of that permit. Work performed and liabilities incurred pursuant to a demolition or moving permit shall not be considered in determining whether an owner may complete a building or structure for which a permit has been issued.

B. Validity of other laws. The issuance or granting of a permit shall not be construed to be a permit for, or an approval of, any violation of any of the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State. Permits presuming to give authority to violate or cancel the provisions of this title, municipal code or other ordinances of the City or law and statutes of the State shall not be valid. The Building Official is authorized to prevent occupancy or use of a structure pursuant to Section 18.03.020 where in violation of the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State.

C. Official grades. The permittee shall decide the correctness of proposed structure elevations and locations with respect to the official grades of public streets and to the policy of the Department of Public Works relative to the location and length of curb depressions for driveways.

D. Easements. Before the issuance or granting of a permit, the Building Official shall require a declaration, under penalty of perjury, from the owner or agent having the property owner's consent stating that: "The proposed work will not destroy or unreasonably interfere with any access or utility easement belonging to others and located on my property, but in the event such work does destroy or unreasonably interfere with such easement, a substitute easement(s) satisfactory to the holder(s) of the easement will be provided." (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.04.060 Expiration, suspension, revocation and transfer of permit.

A. Expiration. Every permit issued shall be valid for a period of two (2) years from the date of

its issuance; provided however that every permit issued shall expire on the ninetieth (90th) day after its issuance if the work on the site authorized by such permit has not commenced or has not been inspected as required by Chapter 18.07; or shall expire whenever the Building Official determines the work authorized by such permit has been suspended, discontinued or abandoned or has not been inspected as required by Chapter 18.07 for a continuous period of ninety (90) days after the time the work has commenced.

EXCEPTIONS:

1. If the holder of any permit issued by the Building and Safety Bureau presents satisfactory evidence that unusual construction difficulties have prevented work from being started or continued without being suspended, discontinued or abandoned or the work has not been inspected within the ninetieth (90th) day time period, the Building Official shall have the authority to grant extensions of time as reasonably necessary, each not to exceed ninety (90) days and not to extend beyond the period of validity. The extension shall be requested in writing on a form furnished by the Building Official for that purpose with the justifiable cause demonstrated pursuant to Section 18.03.050. Requests for additional extensions may be granted at the discretion of the Building Official, however, additional requirements dependent on the circumstances may apply.

2. If the holder of any permit issued by the Building and Safety Bureau presents satisfactory evidence that unusual construction difficulties have prevented work from being completed within the two (2) year period of validity, the Building Official shall have the authority to grant a maximum of two (2) extensions each not to exceed one hundred eighty (180) days. The extension shall be requested in writing on a form furnished by the Building Official for that purpose with the justifiable cause demonstrated pursuant to Section 18.03.050. Requests for additional extensions may be granted at the discretion of the Building Official, however, additional requirements dependent on the circumstances may apply.

Notwithstanding the provisions of this subsection to the contrary, the time limit of a permit may be further restricted under the following conditions:

1. In the case of a building or structure that has been ordered repaired, rehabilitated, vacated or demolished in accordance with this title; ordered to correct a violation of this title in accordance with Chapters 18.03 and 18.20; or in the case of a responsible person that has been ordered to correct a violation or unsafe condition of a building or structure pursuant to Chapters 8.76, 9.37, or 9.65, such time limits as specified therein shall apply.

2. The Building Official may, because of unusual circumstances or conditions such as, but not limited to, the repair, rehabilitation, vacation or demolition of an imminently hazardous, substandard, or dangerous building or structure, or a grading operation that may be subject to flooding during the rainy season between October 1st to April 15th, impose restrictions upon the time limits for expiration of any permit.

3. Permit issued for temporary structures or uses shall be limited as to time of service, but shall not be permitted for more than one hundred eighty (180) days within the last twelve (12) months.

4. Permit issued for moving buildings and structures pursuant to Chapter 18.60 shall be limited as specified in Section 18.60.190.

5. Permit issued to complete the required work pursuant to Subsection 18.04.060.B shall be limited to thirty (30) days or such time limits as determined by the Building Official from the date of the permit issuance.

B. Unfinished buildings or structures. Whenever the Building Official determines by inspection that work on any building or structure for which a permit has been issued and the work started thereon has been suspended, discontinued or abandoned for a continuous period of ninety (90) days or more or the permit expired after the two-year period of validity, the owner of the property upon which such building or structure is located, or other person or agent in control of said property, upon receipt of notice in writing from

the Building Official to do so, shall, within thirty (30) days or such time limits as specified therein from the date of such written notice, obtain a new permit to complete the required work, pay the fee of one-half (1/2) the amount required for a new permit for such work, provided no changes have been made or will be made in the original approved construction documents for such work, and diligently pursue the work to completion and provided, further, that such suspension, discontinuance or abandonment has not exceeded one hundred eighty (180) days; or shall remove or demolish the building or structure within ninety (90) days or such time limits as specified therein from the date of the written notice.

C. Restore to original condition. Permits that have expired shall have the site, building or project restored to the condition that existed immediately prior to the commencement of work described by such permit.

D. Suspension or revocation. The Building Official shall have the authority to, in writing, suspend or revoke a permit issued under provisions of this title whenever the permit is issued in error or on the basis of incorrect, inaccurate or incomplete information supplied, or in violation of any provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State.

E. Transfer of permit. Active permits required by this title may be transferred to a qualified person meeting the requirement of Section 18.04.070 for a fee as set forth in Section 18.06.170. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.04.070 Requirement and responsibility of permittee.

A. Permittee. Permits as required by this chapter shall be issued only to the following individuals:

1. A duly licensed contractor acting in compliance with the provisions of Sections 7000 through 7199 of the California Business and Professions Code and the Business License Regulations set forth in Title 5 of the municipal code, provided a written and signed statement from the duly licensed contractor stating that he or she is licensed, the number of the license and that it is in full force and effect as required by Section 7031.5 of the California Business and Professions Code.

2. An owner of a one- or two-family dwelling and related accessory building or structure acting in compliance with the provisions of Section 7044 of the California Business and Professions Code; provided however that the improvements of the property are not intended or offered for sale, the owner occupies or intends to occupy one (1) of the units where such permit is to be obtained for the twelve (12) months prior to the completion of the work, and the owner has not performed work on more than two (2) buildings or structures during any three-year period.

3. An owner-builder acting in compliance with the provisions of Section 7044 of the California Business and Professions Code; provided however that the owner-builder does the work himself or herself or through his or her own employees, with wages as their sole compensation, and the structure(s) is/are not intended for sale; or the owner-builder contracts with properly licensed subcontractors for the construction of a single-family residential structure and limits the number of structures intended or offered for sale to four (4) or fewer in a calendar year.

4. A responsible person not acting in violation of Chapter 9 (commencing with Section 7000) of Division 3 of the California Business and Professions Code and the Business License Regulations set forth in Title 5 of the municipal code; provided a written and signed statement by the responsible person giving the basis for the alleged exemption from licensure under the Contractors' State License Law.

B. Workers' compensation insurance verification. The Building Official is required by Section 3800(a) of the California Labor Code to verify workers' compensation insurance prior to issuing a permit. The permittee shall sign a declaration under penalty of perjury verifying Workers' Com-

pensation Coverage or exemption from coverage as required by Section 19825 of the California Health and Safety Code.

C. Responsibility. Permits shall be presumed to incorporate the provision that the permittee, the permittee's agent, employees, contractors or subcontractors shall carry out the proposed work in accordance with the approved construction documents and with all provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State applicable thereto, whether specified or not. No approval shall relieve or exonerate any person from the responsibility of complying with the provisions and intent of this title, municipal code or other ordinances of the City, or laws and statutes of the State applicable thereto.

D. Required contractor and subcontractor documentation for large construction projects. The permittee shall document all contractors and subcontractors as follows:

1. A person applying for a permit under this Code to perform work on large construction projects, including, residential projects consisting of fifty (50) or more dwelling units, or commercial projects consisting of fifty thousand (50,000) square feet or more of new construction, shall submit the following additional information at the time of permit issuance:

a. A list of all contractors, subcontractors, and verification of each subcontractor's workers' compensation insurance policy number and expiration date; state contractor's license number, classification and expiration date; and City business license number and expiration date. No person shall contract or subcontract construction work without a valid contractor's license pursuant to applicable provisions of the state business and professions code.

b. A disclosure of any pending or previous enforcement actions, penalties paid for state or federal labor code violations, and the penalties for non-compliance, including the issuance of a Stop Work Notice, related to the provisions of the California Labor Code within the previous five (5) years for all subcontractors.

c. A disclosure of any allocations of healthcare expenditures made to or on behalf of each construction worker and for their contractors and subcontractors.

2. In the event that the applicant cannot provide a list of valid contractors or subcontractors, and the information required above at the time of permit issuance, the applicant shall provide this information to the City, within a reasonable period of time after issuance of each permit not to exceed 90 days or as agreed upon by the Building Official, but prior to commencement of any work pursuant to said permit. Failure to provide valid and current contractor and subcontractor information prior to commencing work shall result in one or more of the following:

a. Issuance of a Stop Work Order; and

b. Revocation of any permit issued by the City; and

c. The permittee paying a penalty for default to the City in an amount equal to the original permit fee for each violation in order to defray City costs of enforcement of this section prior to the issuance of any new permit.

3. The information required by section 1 shall be submitted when any new contractor or subcontractor is added to the permit.

4. Any work performed prior to satisfying the requirements of this section may be deemed as construction without required permits. (ORD-25-0019 § 1(Exh. A), 2025; ORD-24-0018, § 1, 2024; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.05 SUBMITTAL DOCUMENTS

18.05.010 General.

Submittal documents consisting of construction documents, written record of computations, statement of special inspections, geotechnical report and other pertinent data shall be submitted with each permit application. The construction documents shall be prepared by a registered design professional licensed in the State of Califor-

nia to practice as such. Where special conditions exist, the Building Official is authorized to require additional construction documents to be prepared by a registered design professional.

EXCEPTION: The Building Official is authorized to waive the submission of construction documents and other data not required to be prepared by a registered design professional if the Building Official finds that the nature of the work applied for is such that the review of construction documents is not necessary to obtain compliance with the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.05.020 Number of construction documents.

Each application for a permit shall be accompanied by one (1) set of submittal documents for each type of plan examination or as determined by the Building Official. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.05.030 Construction documents.

All construction documents shall be dimensioned and drawn with ink or indelible pencil upon suitable material, or shall be made by a reproduction process approved by the Building Official. Electronic media documents are permitted to be submitted when approved by the Building Official. The first sheet of each set of construction documents shall give the street address of the work and the name and address of the owner of the building.

All construction documents shall be of sufficient clarity to indicate the location, nature and extent of the work proposed and show in detail that it will conform to the provisions of this title and relevant laws, ordinances, rules and regulations, as determined by the Building Official.

In lieu of detailed specifications, the Building Official may approve reference on the construction documents to a specific section, subsection or paragraph of this title, municipal code or other ordinances of the City, or laws and statutes of the State.

Distances and dimensions on the construction documents, when required to show conformity with the provisions of this title, shall be done in figures.

All construction documents shall include sufficient information to demonstrate compliance for installations required to comply with the rules and regulations of the California Energy Code adopted in Chapter 18.46, where applicable.

Where applicable, additional information required in Subsections A through E of this section shall be provided:

A. Information on building or structure required.

1. Construction documents shall be accompanied by a site plan showing to scale the size and location of new construction and existing structures on the site, distances from lot lines, the established street grades and the proposed finished grade and, as applicable, flood hazard areas, floodways, and design flood elevations. It shall be drawn in accordance with an accurate boundary line survey. In the case of demolition, the site plan shall show construction to be demolished and the locations and size of existing structures and construction that are to remain on the site.

EXCEPTION: The Building Official is authorized to waive or modify the requirement for a site plan when the application for permit is for alteration or repair or when otherwise warranted. Furthermore, the Building Official is authorized to grant the omission of a site plan when the proposed work is of such a nature that no information is needed to determine compliance with all laws relating to the location of buildings or structures.

2. Construction documents for buildings of other than one- or two-family dwelling and related accessory building and structure shall indicate how required structural and fire-resistive integrity will be maintained where a penetration will be made for electrical, mechanical, plumbing and communication conduits, pipes and similar systems.

3. Construction documents shall show in sufficient detail the location, construction, size and character of all portions of the means of egress, including the path of exit discharge to the public way, in compliance with the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State. In other than Groups R-2, R-3, and I-1 occupancies, the construction documents shall designate the number of occupants to be accommodated on every floor, and in all rooms and spaces.

4. Construction documents for all buildings shall describe the exterior wall envelope in sufficient detail to determine compliance with provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State. The construction documents shall provide details of the exterior wall envelope as required, including flashing, intersections with dissimilar materials, corners, end details, control joints, intersections at roof, eaves or parapets, means of drainage, water-resistive membrane and details around openings.

5. Construction documents shall include manufacturer's installation instructions that provide supporting documentation that the proposed penetration and opening details described in the construction documents maintain the weather resistance of the exterior wall envelope. The supporting documentation shall fully describe the exterior wall system that was tested, where applicable, as well as the test procedure used.

6. Where balconies or other walking surfaces have weather-exposed surfaces, and the structural framing is protected by an impervious moisture barrier, the construction documents shall include details for all elements of the impervious moisture barrier system including, but not limited to, the manufacturer's installation instructions.

7. Construction documents shall show all mitigation measures required under the National Pollutant Discharge Elimination System (NPDES) permit issued to the City of Long Beach and the requirements of the Standard Urban Storm Water Mitigation Plan (SUSMP) mandated by the California Regional Water Quality Control Board in accordance with Section 8.96.130.

8. Construction documents for buildings and structures providing a methane gas mitigation system shall provide drawings indicating compliance with Chapter 18.79. The construction documents shall provide details of the sub-slab ventilation system, membrane barrier, above-grade ventilation, signage, and methane gas detection and alarm system.

9. For buildings located in whole or in part in flood hazard areas as established in Chapter 16 and Appendix G of the California Building Code adopted in Chapter 18.40 or Chapter 3 of the California Residential Code adopted in Chapter 18.41, the construction documents shall include flood hazard documentations and design flood elevation information as required by provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State.

10. When a structural design is required for the purpose of obtaining a permit, it shall be justified by a written record of computations filed with the Building Official and each sheet of the construction documents and written record of computations shall be signed by or bear the approved stamp of a registered design professional licensed by the State of California to practice as such. On structures which do not require a registered design professional's signatures according to Article 3, Chapter 7, Division 3, of the California Business and Professions Code but do require some structural design, the person responsible for such design shall sign the calculations and the sheets of the construction documents having engineering details thereon.

11. Construction documents shall provide structural information specified in Chapter 16 of the California Building Code adopted in Chapter 18.40 or Chapter 3 of the California Residential Code adopted in Chapter 18.41.

12. When required by Chapter 17 of the California Building Code adopted in Chapter 18.40, a statement of special inspection prepared by the registered design professional in responsible charge of the project shall be included with the construction documents.

13. When reports are required by this chapter, recommendations included in the approved

soils engineering report and engineering geology report shall be incorporated into the grading construction documents, including the dates of the soils engineering and engineering geology reports together with the names, addresses and phone numbers of the firms or individuals who prepared the reports. A copy of the soils engineering report and engineering geology report shall be attached to the approved set of grading construction documents and kept at the job site. Reports shall be submitted to the Building Official for review and approval in, but not limited to, the following circumstances:

a. When required by Chapter 18 of the California Building Code adopted in Chapter 18.40.

b. When projects are located on sites designated as an Alquist-Priolo Earthquake Fault Zone or Seismic Hazard Zone established pursuant to Chapter 7.5, Division 2, of the California Public Resources Code or a seismic hazard zone established pursuant to Chapter 7.8, Division 2, of the California Public Resources Code the Applicant shall demonstrate through accepted geologic seismic studies that the proposed building or structure will be located in a safe manner and not over or astraddle the trace of an active fault. Acceptable geologic seismic studies shall meet the criteria as set forth in rules and regulations established by the Building Official to ensure that such studies are based on sufficient geologic data to determine the location or nonexistence of the active fault trace on a site. Prior to approval of a project, a geologic report defining and delineating any hazard of surface fault rupture shall be required.

Notwithstanding Sections 2621.6 and 2621.7 of the California Public Resources Code to the contrary, the Building Official shall have the authority, as deemed necessary and appropriate, to establish criteria in determining the type of projects that are required to comply with this subsection.

c. When previously unknown adverse soils or geologic conditions, including liquefaction or expansive soils, are revealed prior to or during construction.

d. When buildings or structures are located near or on fills containing decomposable material. No new buildings or structures or additions to existing buildings and structures shall be located within one thousand (1,000) feet of fills containing rubbish or other decomposable material unless the fill is isolated by approved natural or manmade protective systems or unless designed according to the recommendations contained in a report prepared by a registered design professional licensed in the State of California to practice as such. Such report shall contain a description of the investigation, study and recommendation to minimize the possible intrusion, and to prevent the accumulation of explosive concentrations of decomposition gases within or under enclosed portions of such building or structure. At the time of the final inspection, the registered design professional shall furnish a signed statement attesting that the building or structure has been constructed in accordance with his or her recommendations as to decomposition gases required herein. No new buildings or structures or additions to existing building or structures shall be constructed on fills containing rubbish or other decomposable material unless provision is made to prevent damage to structure, floor, underground piping and utilities due to uneven settlement of the fill. One-story light frame accessory structures not exceeding four hundred (400) square feet in area nor twelve (12) feet in height may be constructed without special provisions for foundation stability.

The soils engineering report required by this section shall include data regarding the nature, distribution and strength of existing soils, conclusions and recommendations for grading procedures and design criteria for corrective measures, including buttress fills, when necessary, and opinion on adequacy for the intended use of sites to be developed by the proposed grading as affected by soils engineering factors, including the stability of slopes.

The engineering geology report required by this section shall include an adequate description of the geology of the site, conclusions and recommendations regarding the effect of geologic con-

ditions on the proposed development, and opinion on the adequacy for the intended use of sites to be developed by the proposed grading, as affected by geologic factors.

EXCEPTIONS:

1. A soils and geological report is not required where the Building Official determines that the nature of the work applied for is such that a report is not necessary.

2. A liquefaction study is not required where the Building Official determines from established local data that the liquefaction potential is low.

All soils engineering and engineering geology reports shall comply with rules and standards established by the Building Official.

14. The increase in allowable building area permitted by Chapter 5 of the California Building Code adopted in Chapter 18.40 shall not be allowed unless or until the owner of the required yard shall file with the Building Official an agreement binding such owner, heirs and assignees, to set aside the required yard as an unobstructed space having no improvements. Such agreement shall be recorded in the County Recorder's Office.

B. Information on grading required.

1. Application for a grading permit shall be accompanied by grading construction documents prepared and signed by a registered design professional licensed by the State of California to practice as such. The first sheet of each set of grading construction documents shall give location of the work, the name and address of the owner and the person by whom they were prepared. The grading construction documents shall include, but not be limited to, the following information:

a. General vicinity of the proposed site.

b. Property limits and accurate contours of existing ground and details of terrain and area drainage.

c. Limiting dimensions, elevations or finish contours to be achieved by the grading, and proposed drainage channels and related construction.

d. Detailed plans of all surface and subsurface drainage devices, walls, cribbing, dams and other protective devices to be constructed with, or as a part of, the proposed work together with a map showing the drainage area and the estimated runoff of the area served by any drains.

e. Location of any buildings or structures on the property where the work is to be performed and the location of any buildings or structures on land of adjacent owners that are within fifteen (15) feet of the property or which may be affected by the proposed grading operations.

f. The location of the top and toe of all cuts and fills, the location of all "daylight" lines, the amount of cut and fill, the location of disposal site for excess material, if known, and the estimated dates for starting and completing grading work.

2. Grading construction documents shall be prepared by a registered land surveyor or registered civil engineer licensed in the State of California to practice as such when the property location and its limits are not clear.

EXCEPTION: Portions of the aforementioned grading construction documents requirements may be waived by the Building Official if he or she finds that the information on the application and/or submitted plans is sufficient to show that the work will conform to the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State.

3. The Building Official is authorized to require professional inspection and testing by the soils engineer. When the Building Official has cause to believe that geologic factors may be involved, the grading will be required to conform to engineering grading.

C. Information on electrical required.

1. When required by the Building Official for the enforcement of any provision of this title, construction documents for the installation of electrical wiring or equipment shall be filed with the Building Official and approved prior to the issuance of any permit.

2. The construction documents shall show the following:

a. Construction documents shall be of sufficient clarity to show that the proposed electrical

installation will conform to the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State.

b. Layout of the proposed electric systems for each floor or area, including dimensions of all working spaces, a full scope of the project and a legend of all symbols used.

c. The type, location and capacity of all service equipment.

d. The size and the length of all service raceways to the manhole, vault or pole of the serving agency or to the service head.

e. The size of all raceways and the length of all feeder raceways.

f. The dimensions of all pull or junction boxes larger than four inches trade size.

g. The number, size, and type of all conductors to be installed in wiring enclosures.

h. The location of every proposed outlet and switch in all parts of the building or structure including all fixed showcases, wall cases, and similar wiring.

i. The wattage or ampere ratings of each outlet for noninductive loads and the volt-ampere rating of each unit or transformer for electric discharge lighting.

j. The location, voltage, and H.P. rating of every motor and the K.W. rating of every generator. The type and code letter of every A.C. motor shall be given unless otherwise satisfactory to the Building Official.

k. The location and K.V.A., or equivalent rating of each transformer, capacitor, ballast, converter, frequency changer, and similar equipment and the location and ampere or wattage rating of other appliances of the noninductive type.

l. Details of panelboard, switchboard, and distribution centers, showing type and arrangement of switches, overcurrent devices, and general control equipment.

m. Panelboard and switchboard schedules showing wattage and amperage, the number of active branch circuits to be installed, and the number of spare branch circuits for future use. This shall include identifying the circuits to which the outlets are connected.

n. The existing load, as calculated in accordance with Articles 210 and 220 of the California Electrical Code adopted in Chapter 18.42 or by other methods satisfactory to the Building Official, shall be indicated for existing installations having alterations or additions made to them.

o. Other additional information as the Building Official may consider necessary for proper enforcement of this title.

p. On all occupancies indicating location, rating and method being served for all new and existing power distribution equipment.

q. Any or all engineering calculations as applicable for the installation.

r. Interconnected wiring between all devices in each branch circuit from any panelboard or switch-board to the last device or load.

s. Location of grounding and bonding, including, but not limited to, grounding electrode conductor sizes and length, grounding electrode(s) to be utilized, termination locations of all grounding electrode conductors, main and system bonding jumpers.

t. Available fault current and documentation of preliminary design approval from Southern California Edison where the service is new or upgraded.

u. Construction documents for buildings more than two (2) stories in height of other than one- or two-family dwelling and related accessory building or structure shall indicate how required structural and fire resistive integrity will be maintained where a penetration will be made for electrical conduits, pipes and similar systems.

v. Methane gas mitigation measures required for electrical installation per Chapter 18.79 for construction occurring in all areas identified in Section 18.79.040.

3. All electrical materials, devices, appliances and equipment installed or used in the City shall be in conformity with the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State. Conformity with the standards of the Underwriters' Laboratories, Inc., as approved by the American Standards Association, or other approved testing laboratory,

shall be prima facie evidence of conformity with approved standards for safety to life and property. Previously used material shall not be reused in any work without the written approval obtained in advance from the Building Official.

D. Information on plumbing required.

1. When required by the Building Official for the enforcement of any provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State, construction documents for the installation of any plumbing, water piping, gas piping, waste and vent piping, water heater, water heater vents, water treating equipment, or any appliance or device shall be filed with the Building Official and approved prior to the issuance of any permit.

2. The construction documents shall show the following:

a. Construction documents shall be of sufficient clarity to show that the proposed plumbing installation will conform to the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State.

b. Layout of the proposed plumbing systems for each floor or area, including dimensions of all working spaces, a full scope of the project and a legend of all symbols used.

c. Location, size and material of all plumbing pipes and fixtures.

d. System riser or isometric diagrams shall be provided for all drainage, waste and vent, fuel gas, potable water, storm drain, rainwater, sump pump, combination waste and vent and standpipe systems.

e. Construction documents for buildings more than two (2) stories in height of other than one- or two-family dwelling and related accessory building or structure shall indicate how required structural and fire resistive integrity will be maintained where a penetration will be made for plumbing pipes and similar systems.

E. Information on mechanical required.

1. When required by the Building Official for the enforcement of any provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State, construction documents for the installation of environmental heating or cooling systems, refrigeration systems, absorption systems, ventilation systems and hoods shall be filed with the Building Official and approved prior to the issuance of any permit.

2. The construction documents shall show the following:

a. Construction documents shall be of sufficient clarity to show that the proposed mechanical installation will conform to the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State.

b. Layout for each floor with dimensions of all working spaces and a legend of all symbols used.

c. Location, size and materials of all air ducts, air inlets and air outlets.

d. Location of all fans, warm-air furnaces, boilers, absorption units, refrigerant compressors and condensers and the weight of all pieces of such equipment weighing four hundred (400) pounds or more.

e. Rated capacity or horsepower of all boilers, warm-air furnaces, heat exchangers, blower fans, refrigerant compressors and absorption units.

f. Location, size and material of all combustion products, vents and chimneys.

g. Location and area of all ventilation and combustion air openings and ducts.

h. Location of all air dampers, fire dampers, smoke-control dampers and combustion-products-type smoke detectors.

i. The occupancy of each area served by any heating, air-conditioning or ventilation system.

j. The location of all required fire-resistive separations that are penetrated by ducts or openings of any heating, air-conditioning or ventilation system.

k. The complete drawings of all commercial hoods and ventilation systems, including the cooking appliances served by the hoods, and verify:

i. The interconnection of the fire-extinguishing system and fuel shutoff devices.

ii. Compliance with Department of Health and Human Services requirements.

iii. Compliance with South Coast Air Quality Management District requirements.

l. The weight of any equipment weighing more than that specified in Chapter 13 of ASCE 7.

m. Construction documents for buildings more than two (2) stories in height of other than one- or two-family dwelling and related accessory building or structure shall indicate how required structural and fire resistive integrity will be maintained where a penetration will be made for mechanical conduits, pipes and similar systems. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.05.040 Examination of construction documents.

A. General. When the permit applicant, in addition to the fee prescribed therefore and at the time of making application for such permit, pay a plan examination fee as set forth in Section 18.06.020, the Building Official shall examine or cause to be examined the accompanying submittal documents and shall ascertain by such examinations whether the construction indicated and described is in accordance with the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State.

B. Approval of construction documents. When the Building Official issues a permit pursuant to Section 18.04.040, the construction documents shall be approved, in writing or by stamp, as "APPROVED." One set of approved construction documents shall be retained and maintained pursuant to Section 18.05.070.

C. Previous approvals. This title shall not require changes in the construction documents, construction or designated occupancy of a structure for which a lawful permit has been heretofore issued or otherwise lawfully authorized, and the construction of which has been pursued in good faith and has not been expired, suspended, discontinued or abandoned pursuant to Subsection 18.04.060.A or expired pursuant to Section 18.05.060.

D. Amended construction documents. Work shall be installed in accordance with the approved construction documents, and any changes made during construction that are not in compliance with the approved construction documents shall be resubmitted for approval as an amended set of construction documents.

E. Approved construction documents on job. One (1) set of approved construction documents issued to the permit applicant shall be kept at the site of the construction or work at all times during which the work authorized thereby is in progress and shall be available and open to inspection by the Building Official. Any deviation from the stamped or approved construction documents shall be in accordance with Subsection 18.05.040.D.

F. Re-examining construction documents.

1. Re-examining construction documents prior to approval. When construction documents have been examined and are subsequently so revised by the permit applicant for reasons other than plan examination correction as to necessitate re-examination, the Building Official shall require the permit applicant to pay a re-examination fee as set forth in Section 18.06.030 which would be required for the cost of that portion of the construction or work which has been revised. No additional permit fee will be required unless the revision increases the total cost of the entire project. In that event, the Building Official shall require the permit applicant to pay an additional permit fee based on the additional cost.

EXCEPTION: No additional plan examination fee shall be charged for verification of the corrections required by the Building Official.

2. Re-examining construction documents after approval. When construction documents are resubmitted for examination of changes made to previously approved construction documents, the permit applicant shall pay a re-examination fee as set forth in Section 18.06.030. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.05.050 Design professional in responsible charge.

A. General. When it is required that documents be prepared by a registered design professional licensed in the State of California, the Building Official shall be authorized to require the owner to engage and designate on the permit application a registered design professional who shall act as the registered design professional in responsible charge. If the circumstances require, the owner may designate a substitute registered design professional in responsible charge who shall perform the duties required of the original registered design professional in responsible charge. The Building Official shall be notified in writing by the owner if the registered design professional in responsible charge is changed or is unable to continue to perform the duties.

The registered design professional in responsible charge shall be responsible for reviewing and coordinating submittal documents prepared by others, including phased and deferred submittal items, for compatibility with the design of the building.

B. Deferred submittals.

1. For the purposes of this section, deferred submittals are defined as those portions of the design which are not submitted at the time of the application and which are to be submitted to the Building Official within a specified period.

2. Deferral of any submittal items shall have prior approval of the Building Official. The registered design professional in responsible charge shall list the deferred submittals on the construction documents for review by the Building Official.

3. Documents for deferred submittal items shall be submitted to the registered design professional in responsible charge who shall review them and forward them to the Building Official with a notation indicating that the deferred submittal documents have been reviewed and been found to be in general conformance with the design of the building. The deferred submittal items shall not be installed until the Building Official has approved the deferred submittal documents.

C. Structural observation. Where structural observation is required by Chapter 17 of the California Building Code adopted in Chapter 18.40, the statement of special inspections shall name the individual or firms who are to perform structural observation and describe the stages of construction at which structural observation is to occur. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.05.060 Expiration of plan examination.

If after a period of one (1) year from date of application for permit, any permit applicant has failed to pay for and obtain a permit pursuant to Subsection 18.04.040.A, such application and examination fee shall become invalid and no permit shall be issued unless a new application is submitted and a new examination fee paid pursuant to Section 18.06.020. Construction documents submitted at the time of application may be disposed of if after a period of one (1) year from date of application no permit has been paid for or issued.

EXCEPTION: If the permit applicant presents satisfactory evidence that unusual difficulties or, delays have prevented a permit from being approved and made ready for permit issuance, the Building Official shall have the authority to grant a maximum of two (2) extensions each not to exceed one hundred eighty (180) days. The extension shall be requested in writing on a form furnished by the Building Official for that purpose and justifiable cause is demonstrated pursuant to Section 18.03.050. Requests for additional extensions or a second extension of time that extends beyond the adoption of a new California Building Standards Code may be granted at the discretion of the Building Official, however, additional requirements dependent on the circumstances may apply. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.05.070 Retention and maintenance of construction documents.

A. Retention of construction documents. The approved construction documents in electronic or

paper format for every issued permit shall be stamped and retained by the Building Official at issuance of Certificate of Occupancy or final inspection approval for a period of not less than one (1) year from the date of completion of the work covered therein, after which time the Building Official may, at their discretion, either dispose of the copies or retain them as a part of the permanent files of the Building Official as required by Section 19850 of the California Health and Safety Code. Before issuing a permit, the Building Official shall collect a fee pursuant to Section 18.06.090 for maintaining construction documents that are required to be retained by this section.

EXCEPTIONS: Construction documents for the following need not be maintained, except where required by the Building Official:

1. Single or multiple dwellings in areas which are not part of a common interest development (as defined in Section 1351 of the California Civil Code), and not more than two (2) stories and basement in height;

2. Garages and other structures appurtenant to buildings described in Exception 1 of this subsection;

3. Farm or ranch buildings; and

4. Any one-story building where the span between bearing walls does not exceed twenty-five (25) feet. This exception does not, however, apply to a steel frame or concrete building.

B. Inspection of construction documents. The copy of the approved construction documents maintained by the Building Official as provided by Subsection 18.05.070.A may be available for inspection only on the premises of the Building Official.

C. Reproduction of construction documents. Construction documents maintained by the Building Official under Subsection 18.05.070.A may not be duplicated in whole or in part except with the written permission of the certified, licensed or registered professional or his or her successor, if any, who signed the original documents, and the written permission of the original or current owner of the building, or, if the building is part of a common interest development, with the written permission of the board of directors or governing body of the association established to manage the common interest development; upon request by any State agency; or by order of a proper court. In implementing this provision, the Building Official shall comply with the requirements of Section 19851 of the California Health and Safety Code.

The Building Official shall also furnish the form of an affidavit to be completed and signed by the person requesting to duplicate the official copy of the construction documents, which contains provisions stating the following:

1. That the copy of the construction documents shall only be used for the maintenance, operation and use of the building;

2. That drawings are instruments of professional service and are incomplete without the interpretation of the certified, licensed or registered professional of record; and

3. That Sections 5536.25(a) and 6735(b) of the California Business and Professions Code states that a registered design professional who signs construction documents shall not be responsible for damage caused by subsequent changes to, or use of, those construction documents where the subsequent changes or uses, including changes or uses made by State or local governmental agencies, are not authorized or approved by the registered design professional who originally signed the construction documents, provided that the service rendered by the registered design professional who signed the construction documents was not also a proximate cause of the damage.

The fees specified in the following item 1 or 2 shall be paid by the person requesting duplication of construction documents:

1. Construction documents that have not been stored in an electronic storage format and are authorized for reproduction to be duplicated by other than City services will be released only to a Department authorized duplicating service. The person requesting duplication shall pay the cost of duplicating the construction documents directly to the duplicating service. That person shall pay a processing fee for each set of construction documents released to the Building Official as determined by Section 18.06.120.

2. Construction documents that have been stored in an electronic storage format and are authorized for reproduction shall be duplicated by City services or vendors. The Building Official shall collect an initial service fee for each request for reproduction of construction documents plus an additional fee for each sheet requested to be photocopied as determined by Section 18.06.120.

D. Withdrawal of construction documents. The Building Official shall not permit any original construction documents, or portions thereof upon which a permit has been issued, to be withdrawn from the office of the Building Official, except for official use by representatives of the City. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.06 FEES

18.06.010 Permit fees.

A. Building permit fees. A building permit (exclusive of subtrade permits) shall be issued for each building or structure to be erected or upon which work is to be done thereunder when required pursuant to Section 18.04.010 and for each such permit the permit applicant shall pay a permit filing fee as set forth in the schedule of fees and charges established by City Council resolution plus a fee computed on the basis of the estimated total cost of the work proposed to be done, in accordance with the building permit fee as set forth in the schedule of fees and charges established by City Council resolution.

EXCEPTIONS: A single combined permit may be issued for the following:

1. The construction, addition or alteration of any building or structure of a one- or two-family dwelling and related accessory building and structure, which includes all building, electrical, plumbing, heating, ventilating, and air conditioning work; or

2. The construction, addition or alteration of any sign or sign support structure, which includes all building and electrical work.

The total permit fee for the combined building permit shall be as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects with stormwater and low impact development systems regulated under Chapters 8.96 and Chapter 18.74 shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects regulated under Title 24, Parts 2 and 2.5, of the California Code of Regulations, the State's Building and Residential Codes for flood resistant design and construction regulation, shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects with methane gas mitigation systems regulated under Chapter 18.79 shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects regulated under Sections 1.8.2.1.2 and 1.9.1 of Title 24, Part 2, of the California Code of Regulations, the State's Disabled Access and Adaptability Requirements, shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects regulated under Title 24, Part 6, of the California Code of Regulations, the State's Building Energy Efficiency Standards Code as developed by the California Energy Commission, shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects regulated under Chapter 1 of Title 24, Part 11, of the California Code of Regulations, the State's Green Building Standards Code, shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects regulated under Section 2700, Chapter 8, Division 2 of the California Public Resources Code, the State's Strong Motion Instrumentation Program, shall pay an

additional fee as set forth in Section 2705, Chapter 8, Division 2 of the California Public Resources Code.

In addition to the above, projects regulated under Article 1-10 in Chapter 1 of Title 24, Part 1, of the California Code of Regulations, the State's Building Standards Administration Special Revolving Fund, shall pay an additional fee as set forth in Section 18931.6 of the California Health and Safety Code.

In addition to the above, projects regulated under Sections 65850.55 and 66015 of the California Government Code, shall pay fees for solar energy systems and energy storage systems that do not exceed the estimated reasonable cost of providing the service for which the fee is charged, which cannot exceed the amount as set forth in Sections 65850.55 and 66015 of the California Government Code, unless certain conditions are met.

B. Grading permit fees. A grading permit shall be issued to each property or site upon which grading work is to be done thereunder when required pursuant to Subsection 18.04.010.B, and for each such permit the permit applicant shall pay a filing fee as set forth in the schedule of fees and charges established by City Council resolution plus a grading permit fee computed on the basis of the estimated total cubic yard of work proposed to be done as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects with stormwater and low impact development systems regulated under Chapters 8.96 and Chapter 18.74 shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

C. Electrical permit fees. An electrical permit shall be issued for each building or structure upon which work is to be done thereunder when required pursuant to Subsection 18.04.010.C, and for each such permit the permit applicant shall pay a permit filing fee as set forth in the schedule of fees and charges established by City Council resolution plus a fee computed on the basis of the proposed work to be done in accordance with the electrical permit fee as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects regulated under Title 24, Part 6, of the California Code of Regulations, the State's Building Energy Efficiency Standards Code as developed by the California Energy Commission, shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects regulated under Chapter 1 of Title 24, Part 11, of the California Code of Regulations, the State's Green Building Standards Code, shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects regulated under Sections 65850.55 and 66015 of the California Government Code, shall pay fees for solar energy systems and energy storage systems that do not exceed the estimated reasonable cost of providing the service for which the fee is charged, which cannot exceed the amount as set forth in Sections 65850.55 and 66015 of the California Government Code, unless certain conditions are met.

NOTE: For any electrical installation for which an electrical permit is required, but for which no fee is provided in this section, the electrical permit fee shall be based on the valuation of the electrical work and determined by Subsection 18.06.010.A.

Each point at which a lamp holding device, or group of lamp holding devices, is attached shall be considered to be an electrical outlet for which a fee is provided and required, and the lamp holding device shall be considered to be an electrical fixture for which a fee is provided and required.

D. Plumbing permit fees. A plumbing permit shall be issued for each building or structure upon which work is to be done thereunder when required pursuant to Subsection 18.04.010.D, and for each such permit the permit applicant shall pay a permit filing fee as set forth in the schedule of fees and charges established by City Council resolution plus a fee computed on the basis of the

proposed work to be done in accordance with the plumbing permit fee as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects regulated under Chapter 1 of Title 24, Part 11, of the California Code of Regulations, the State's Green Building Standards Code, shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

NOTE: For the purpose of this subsection, a plumbing outlet to which a fixture may be attached shall be considered a plumbing fixture, and any appliance or device which connects directly or indirectly with the soil, waste or water system, or requires a trap or vent, shall be considered a plumbing fixture, and shall include water heaters, boilers and any type of water treating device.

E. Mechanical permit fees. A mechanical permit shall be issued for each building or structure upon which work is to be done thereunder when required pursuant to Subsection 18.04.010.E, and for each such permit the permit applicant shall pay a permit filing fee as set forth in the schedule of fees and charges established by City Council resolution plus a fee computed on the basis of the proposed work to be done in accordance with the mechanical permit fee as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects regulated under Title 24, Part 6, of the California Code of Regulations, the State's Building Energy Efficiency Standards Code as developed by the California Energy Commission, shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects regulated under Chapter 1 of Title 24, Part 11, of the California Code of Regulations, the State's Green Building Standards Code, shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

F. Sign permit fees. A sign permit shall be issued for each sign or sign support structure to be erected or upon which work is to be done thereunder when required pursuant to Subsection 18.04.010.G, and for each such permit the permit applicant shall pay a filing fee as set forth in the schedule of fees and charges established by City Council resolution plus a sign permit fee computed on the basis of the estimated total cost of the work proposed to be done as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects regulated under Title 24, Part 6, of the California Code of Regulations, the State's Building Energy Efficiency Standards Code as developed by the California Energy Commission, shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.06.020 Plans examination fees.

Except where the Building Official has determined that the submittal of construction documents and other data are not required if the Building Official finds that the nature of the work applied for is such that the examination of construction documents is not necessary to obtain compliance with this title, plans examination and the fees for such examination shall be required for the following:

A. Buildings and structures plan(s) examination fees. Except as provided in this section, the permit applicant for a building permit shall, in addition to the fee prescribed therefore and at the time of making application for such building permit, pay a plans examination fee as set forth in the schedule of fees and charges established by City Council resolution, including the filing fee. The plans examination fee for a combined permit shall be as set forth in the schedule of fees and charges established by City Council resolution for a building permit of the same valuation.

EXCEPTION: No plans examination fee shall be required when the Building Official has determined that the submittal of construction documents and other data are not required if it is found

that the nature of the work applied for is such that the examination of construction documents is not necessary to obtain compliance with this title.

In addition to the above, projects with stormwater and low impact development systems regulated under Chapter 8.96 and Chapter 18.74 shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects regulated under Title 24, Parts 2 and 2.5, of the California Code of Regulations, the State's Building and Residential Codes for flood resistant design and construction regulation, shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects with methane gas mitigation systems regulated under Chapter 18.79 shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects regulated under Sections 1.8.2.1.2 and 1.9.1 of Title 24, Part 2, of the California Code of Regulations, the State's Disabled Access and Adaptability Requirements, shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects regulated under Title 24, Part 6, of the California Code of Regulations, the State's Building Energy Efficiency Standards Code as developed by the California Energy Commission, shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects regulated under Chapter 1 of Title 24, Part 11, of the California Code of Regulations, the State's Green Building Standards Code, shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects regulated under Sections 65850.55 and 66015 of the California Government Code, shall pay fees for solar energy systems and energy storage systems that do not exceed the estimated reasonable cost of providing the service for which the fee is charged, which cannot exceed the amount as set forth in Sections 65850.55 and 66015 of the California Government Code, unless certain conditions are met.

B. Grading plans examination fees. The permit applicant for a grading permit shall, in addition to the fee prescribed therefore and at the time of making application for such grading permit, pay a plans examination fee to the City as set forth in the schedule of fees and charges established by City Council resolution, including the filing fee.

In addition to the above, projects with stormwater and low impact development systems regulated under Chapters 8.96 and Chapter 18.74 shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

C. Electrical plans examination fees. The permit applicant for an electrical permit shall, in addition to the fee prescribed therefore and at the time of making application for such electrical permit, pay a plans examination fee to the City as set forth in the schedule of fees and charges established by City Council resolution, including the filing fee.

In addition to the above, projects regulated under Title 24, Part 6, of the California Code of Regulations, the State's Building Energy Efficiency Standards Code, developed by the California Energy Commission shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects regulated under Sections 65850.55 and 66015 of the California Government Code, shall pay fees for solar energy systems and energy storage systems that do not exceed the estimated reasonable cost of providing the service for which the fee is charged, which cannot exceed the amount as set forth in Sections 65850.55 and 66015 of the California Government Code, unless certain conditions are met.

D. Plumbing plans examination fees. The permit applicant for a plumbing permit shall, in addition to the fee prescribed therefore and at the

time of making application for such plumbing permit, pay a plans examination fee to the City as set forth in the schedule of fees and charges established by City Council resolution, including the filing fee.

In addition to the above, projects regulated under Sections 1.8.2.1.2 and 1.9.1 of Title 24, Part 2, of the California Code of Regulations, the State's Disabled Access and Adaptability Requirements, shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects regulated under Chapter 1 of Title 24, Part 11, of the California Code of Regulations, the State's Green Building Standards Code, shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

E. Mechanical plans examination fees. The permit applicant for a mechanical permit shall, in addition to the fee prescribed therefore and at the time of making application for such mechanical permit, pay a plans examination fee to the City as set forth in the schedule of fees and charges established by City Council resolution, including the filing fee.

In addition to the above, projects regulated under Title 24, Part 6, of the California Code of Regulations, the State's Building Energy Efficiency Standards Code, developed by the California Energy Commission shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

In addition to the above, projects regulated under Chapter 1 of Title 24, Part 11, of the California Code of Regulations, the State's Green Building Standards Code, shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

F. Signs and sign support structures plans examination fees. The permit applicant for a sign permit shall, in addition to the fee prescribed therefore and at the time of making application for such sign permit, pay a plans examination fee to the City as set forth in the schedule of fees and charges established by City Council resolution, including the filing fee.

In addition to the above, projects regulated under Title 24, Part 6, of the California Code of Regulations, the State's Building Energy Efficiency Standards Code, developed by the California Energy Commission shall pay an additional fee as set forth in the schedule of fees and charges established by City Council resolution.

G. Express plans examination fees. At the request of the permit applicant, the Building Official may, at his or her discretion, provide plans examination services at other than normal working hours. An express plans examination fee, in addition to the plans examination fees charged elsewhere in this title, as set forth in the schedule of fees and charges established by City Council resolution shall be collected at the time of the request.

H. Geologic reports review fees. A fee as set forth in the schedule of fees and charges established by City Council resolution shall be charged for the review of geologic, soils engineering or geotechnical engineering reports submitted as required by State law for proposed development in seismic hazard zones, including but not limited to, fault rupture, liquefaction and landslide hazard zones or Section 18.05.030.A.13. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.06.025 Determining valuation.

The determination of value or valuation under any of the provisions of this title shall be made by the Building Official. The value to be used in computing the permit and plan examination fees shall be the total value of all construction work, including materials and labor, for which the permit is issued as well as all finish work, painting, roofing, electrical, plumbing, heating, air conditioning, elevators, fire protection systems and any other permanent equipment except as provided for in 18.04.020; or the estimate cost to replace the building or structure or portion thereof in kind, based on current replacement cost as determined therein.

In flood hazard areas, the determination of substantially improvement or repair of substan-

tial damage buildings or structures shall be in accordance with Section 1612 and Appendix G of the California Building Code adopted in Chapter 18.40 or Section R306 of the California Residential Code adopted in Chapter 18.41 for flood-resistant design and construction regulations.

No person shall willfully or negligently withhold from or misrepresent to the Building Official any information he or she may request relative to the estimated cost of any proposed work for which an application for a permit has been filed or misrepresent the cost of any such work. The determination or collection of fees based upon incorrect information and other data supplied by the permit applicant shall not prevent the Building Official from subsequently requiring the correction of the error in determining or collecting the appropriate fees. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.06.030 Plans re-examination fees.

When required by Section 18.05.040, the permit applicant shall pay a plan re-examination fee as set forth in the schedule of fees and charges established by City Council resolution. The plan re-examination fee in the case of a building, sign or subtrade permit shall be based on a rate as set forth in the schedule of fees and charges established by City Council resolution and the plan examination fee for a grading permit shall be as set forth in the schedule of fees and charges established by City Council resolution for the number of cubic yards replaced, removed or omitted that were not previously approved. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.06.040 Re-inspection fee.

When required by Section 18.07.030, the permit applicant shall pay a re-inspection fee as set forth in the schedule of fees and charges established by City Council resolution. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.06.050 Special inspection fee.

A. General. Upon request, the Building Official will make special inspections provided:

1. The permit applicant makes accessible and exposes elements or structures inspected;

2. That the permit applicant pays a fee as set forth in the schedule of fees and charges established by City Council resolution for the following:

a. Building inspection,
b. Plumbing inspection,
c. Electrical inspection,
d. Mechanical inspection,
e. Housing inspection (dwellings),
f. Code inspection for business license,
g. Non-team inspection,
h. Team inspection,
i. Condominium conversion inspections, and
j. Site inspection not otherwise covered.

B. Additional inspection fee. A fee as set forth in the schedule of fees and charges established by City Council resolution per hour or fraction thereof shall be charged for inspections requiring in excess of one (1) hour.

EXCEPTION: Within the scope of the special inspections, the Building Official may approve minor corrections or alterations involving work of a building, plumbing, mechanical or electrical nature with an aggregate total cost of two thousand dollars ($2,000.00) or less.

C. Off-hour inspection fee. For inspections performed on request at other than normal office hours, a fee as set forth in the schedule of fees and charges established by City Council resolution. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.06.060 Fees for verification of reports.

A. Special inspection supervision fee. To supervise the performance of registered special inspectors required to be employed for certain types of work as provided by Section 18.07.080, a fee as set forth in the schedule of fees and charges established by City Council resolution for each type of work shall be paid at the time of permit issuance.

B. Structural observation report fee. To verify that all structural observation reports required by Chapter 17 of the California Building Code adopted in Chapter 18.40 have been received prior to the issuance of a Certificate of Occupancy, a fee as set forth in the schedule of fees and charges established by City Council resolution shall be paid at the time of permit issuance. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.06.070 Investigation fees—Work without a permit.

A. Investigation. Whenever any work for which a permit is required by this title has been commenced without first obtaining such permit, a special investigation shall be made before a permit may be issued for such work.

B. Fee. An investigation fee, in addition to the permit fee, shall be collected whether or not a permit is then or subsequently issued. The investigation fee shall be equal to the amount of the permit fee required by this title with a minimum fee as set forth in the schedule of fees and charges established by City Council resolution. The payment of such investigation fee shall not exempt any person, firm or corporation from compliance with all other provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State nor from any penalty prescribed by law.

EXCEPTION: The investigation fee may be waived for emergency work when it is proved to the satisfaction of the Building Official that such work was urgently needed and it was impractical to obtain a permit prior to commencement of the work. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.06.080 Code Enforcement Fees.

A. Purpose. Property owners are liable for costs incurred by the City in abating a substandard or dangerous property condition, as well as for fees for Code Enforcement.

B. When a permit is required. Whenever a permit is required to abate a substandard or dangerous condition as ordered by the Building Official, the responsible party must apply for the permit and pay the permit fee in addition to any code enforcement fees. If the abatement order of the Building Official is reversed on appeal to the Board of Examiners, Appeals and Condemnation, or by appeal to City Council, neither the code enforcement fee nor any directly corresponding permit fee shall be required.

C. Re-inspection fee. A re-inspection fee shall be imposed when an additional inspection is conducted to address violations of this Title. The re-inspection fee is intended to offset the costs of the re-inspection.

D. Fee. The fees required by this title are set forth in the schedule of fees and charges established by City Council resolution. The payment of code enforcement fees shall not exempt any person, firm, or corporation from compliance with this code nor from any penalty prescribed by law. (ORD-26-0004 § 7, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.06.090 Construction document maintenance fee.

Before issuing a permit, the Building Official shall collect a fee for maintaining construction documents that are required to be retained by Section 18.05.070. The amount of the construction document maintenance fee shall be as set forth in the schedule of fees and charges established by City Council resolution and shall be collected for each separate construction document to be retained by the Building Official. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.06.100 Board of Appeal fees.

A fee as set forth in the schedule of fees and charges established by City Council resolution shall

be charged to a person appealing to the Board of Examiners, Appeals and Condemnation pursuant to Chapter 18.10.

EXCEPTION: For appeal involving condemnations and from corrective notices as provided for in this title, there shall be no required fee. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.06.110 Fee for verifying and reproducing permit records.

A fee will be charged to verify permit and inspection records, including age of building. Reproduction of permit records may be obtained for a fee. The fee is as set forth in the schedule of fees and charges established by City Council resolution. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.06.120 Processing fee for reproducing construction document records.

A processing fee as set forth in the schedule of fees and charges established by City Council resolution shall be charged to process a request for a copy of construction documents on record. A separate processing fee shall be paid for each construction document or set of construction documents involving a single site. The processing fee shall be in addition to fees charged to cover duplicating costs. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.06.130 Oil and gas well record search.

A fee as set forth in the schedule of fees and charges established by City Council resolution for each lot or parcel located in an oil zone shall be charged for a record search to determine the existence and location of subsurface gas or oil wells. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.06.140 Oil or gas well abandonment.

A fee as set forth in the schedule of fees and charges established by City Council resolution shall be charged for the inspections required during the abandonment of an oil or gas well. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.06.150 Service connection fee.

When electrical connection by the utility company is necessary to supply such temporary use, the owner of the building or a duly authorized representative shall make application and pay a fee as set forth in the schedule of fees and charges established by City Council resolution for each service connection.

Each meter and meter switch is considered a separate service. The Building Official may impose such reasonable requirements and regulations in connection therewith as he or she may deem necessary. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.06.160 Code modification and alternate fees.

A. Code modification fee. A written application for code modification pursuant to Section 18.03.050 shall be submitted together with a filing fee as set forth in the schedule of fees and charges established by City Council resolution. An additional fee as set forth in the schedule of fees and charges established by City Council resolution per hour or fraction thereof shall be charged when staff review time exceeds one (1) hour.

B. Code alternate fee. A written application for alternate materials, design and methods of construction or equipment pursuant to Section 18.03.060 shall be submitted together with a filing fee as set forth in the schedule of fees and charges established by City Council resolution. An additional fee as set forth in the schedule of fees and charges established by City Council resolution per hour or fraction thereof shall be charged when actual staff review time exceeds one (1) hour.

EXCEPTION: The requirement for application and fees and charges may be waived by the Building Official for materials, products or methods which have been evaluated and listed by the International Code Council, the national research board, or other recognized agency. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.06.170 Transfer of permit fee.

Active permits transferred pursuant to Subsection 18.04.060.E shall pay a permit transfer fee as set forth in the schedule of fees and charges established by City Council resolution. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.06.180 Temporary Certificate of Occupancy fee.

Permit applicants requesting a Temporary Certificate of Occupancy pursuant to Section 18.08.040 shall pay an investigation fee as set forth in the schedule of fees and charges established by City Council resolution for which approval of temporary occupancy is sought with the minimum fee as set forth in the schedule of fees and charges established by City Council resolution. An additional investigation fee shall be paid to extend a Temporary Certificate of Occupancy beyond thirty (30) days in an amount as set forth in the schedule of fees and charges established by City Council resolution of the initial investigation fee as set forth in the schedule of fees and charges established by City Council resolution for each additional thirty (30) day period or fraction thereof. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.06.190 Waiver of fees.

The Director may waive any application fee pursuant to the provisions of this title or municipal code if the Director first finds as follows:

1. A permit has been issued which does not fully conform to the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State; and

2. There is no evidence that the permit applicant, in seeking the permit intentionally sought to avoid conformance to the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State; and

3. Substantial construction commenced in good faith reliance on that permit; and

4. Stoppage has been ordered subsequent to such commencement as a result of the failure of the permit to conform to the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State; and

5. The application or applications for which a fee waiver is requested and granted are necessary in order to authorize the issuance of the permit in a manner fully conforming to the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.06.200 Refunds.

A. General. No portion of any permit as required in this title shall be refunded to the permit applicant unless, prior to commencement of actual work thereunder, the proposal to do such work is abandoned, or it is discovered that such permit is void under provisions of this title, municipal code or other ordinances of the City. No portion of a checking fee shall be refunded to the permit applicant if any checking of the construction documents has been done in the office of the Building Official.

B. Condition. Refunds shall be made in the calculated amount so determined in this section and under the conditions as set forth in Sections 3.48.040 and 3.48.060.

C. Administration fee. Before any refund is made under this chapter, the Building Official shall deduct a percent as set forth in the schedule of fees and charges established by City Council resolution of the fee paid to pay for expenses incurred by the City in connection with accepting the construction documents, passing upon the application for or issuance of the permit, and the

sum shall be deducted from the fee so paid and the balance paid to such person. If the person entitled to the refund is an individual and such person becomes deceased, the refund may be made to such person or persons entitled to receive the money.

D. Expiration. Any application for refund must be filed by the person entitled to receive such refund within the prescribed expiration period in Subsection 18.06.200.B. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.07 INSPECTIONS

18.07.010 General.

A. Inspection. All construction or work for which a permit is required shall be subject to inspection by Section 18.07.050 and such construction or work shall remain accessible and exposed for inspection purposes until approved. Certain types of construction shall have special inspections by registered special inspectors as specified in Section 18.07.080 and Chapter 17 of the California Building Code adopted in Chapter 18.40. Prior to the issuance of a Certificate of Occupancy as specified in Section 18.08.010, a final inspection in accordance with Section 18.07.050 shall be made by the Building Official of all construction or work for which a permit has been issued.

B. Liability. Neither the Building Official, authorized employees of the Department, nor the City shall be liable for expense entailed in the removal or replacement of any material required to allow inspection. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.07.020 Inspection record card.

The Building Official shall furnish with each permit an inspection record card to be posted in a conspicuous place on the front premises (or electric meter box) and in such position as to allow the Building Official to conveniently make the required entries thereon regarding inspection of the work. The inspection record shall show the project address, description of work, permit number and the date of permit issuance, and list the required inspections.

When any of the required inspections pursuant to Section 18.07.050 have been made and that portion of the work is approved, the inspector shall so record on the permit card posted on the job. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.07.030 Inspection requests.

A. General inspection request. It is the duty of the permit holder or their duly authorized agent to notify the Building Official when work is ready for inspection and to provide access to and means for inspections of such work that are required by this title. The Building Official may require that every request for inspection be filed at least one (1) working day before such inspection is desired. Such request may be in writing, by telephone or by other means at the option of the Building Official.

B. Re-inspection request. To obtain a re-inspection, the permit applicant shall request such inspection pursuant to Subsection 18.07.030.A. A re-inspection fee in Section 18.06.040 may be charged for the following:

1. For each inspection or re-inspection when the portion of work for which the inspection or re-inspection is called is not complete or when the correction called for is not made.

NOTE: This section is not to be interpreted as requiring re-inspection fees the first time a job is rejected for failure to comply with the requirements of this title, but as controlling the practice of calling for inspections before the job is ready for such inspection or re-inspection.

2. When the permit card is not properly posted on the work site, the approved construction documents are not readily available to the inspector, for failure to provide access on the date for which

inspection is requested, or for deviating from the approved construction documents requiring the approval of the Building Official.

In instances where re-inspection fees have been assessed, no additional inspections will be performed related to the project or portion thereof until the required fees have been paid. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.07.040 Approvals required.

No work shall be done on any part of the building or structure beyond the point indicated in each successive inspection without first obtaining the written approval of the Building Official. The Building Official, upon notification pursuant to Section 18.07.030 by the person, firm or corporation performing the work, shall make the requested inspections and shall either indicate the portion of the construction that is satisfactory as completed, or notify the permit holder or their duly authorized agent wherein the same fails to comply with the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State. Any portions that do not comply shall be corrected and such portion shall not be covered or concealed until authorized by the Building Official. Such written approval shall be given only after an inspection has been made of each successive step in the construction as indicated by each of the inspections required or conditions stipulated in Section 18.07.050. There shall be a final inspection and approval on all buildings or equipment installations when completed and ready for occupancy or use.

EXCEPTIONS:

1. For temporary connection, the Building Official may give written permission to furnish electric current to or the use of electric current through any electrical wiring if such electrical wiring may be used safely for such purposes, and that there exists an urgent necessity for such use.

2. The requirements of this section shall not be considered to prohibit the operation of any heating equipment installed to replace existing heating equipment serving an occupied portion of a building, in the event a request for inspection of such heating equipment has been filed with the Building Official not more than forty-eight (48) hours after such replacement work is completed, and before any portion of such equipment is concealed by any permanent portion of the building. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.07.050 Required inspections.

A. Building. The Building Official, upon notification as specified in Section 18.07.030, shall make the inspections set forth in subsection, if applicable.

1. Footing and foundation inspection. Footing and foundation inspections shall be made after excavations for footings are complete and any required reinforcing steel is in place. For concrete foundations, any required forms shall be in place prior to inspection. Materials for the foundation shall be on the job, except where concrete is ready mixed in accordance with ASTM C94, the concrete need not be on the job.

2. Concrete slab and under-floor inspection. Concrete slab and under-floor inspections shall be made after all in-slab or under-floor reinforcing steel and building service equipment, conduit, piping accessories and other ancillary equipment items are in place, but before any concrete is placed or floor sheathing installed, including the subfloor.

3. Methane gas mitigation system inspection. Vent collector and sub-slab pipe routing shall be inspected prior to placement of the methane barrier. The methane barrier shall be inspected after installation is complete and a certificate of installation is provided by the installer. Exterior wall vent risers shall be inspected prior to concealment within the wall.

4. Lowest floor elevation. In flood hazard areas, upon placement of the lowest floor, including the basement, and prior to further vertical construction, the elevation certification required in Chapter 16 and Appendix G of the California Building Code adopted in Chapter 18.40 or Chap-

ter 3 of the California Residential Code adopted in Chapter 18.41, as applicable, shall be submitted to the Building Official.

5. Frame inspection. Framing inspections shall be made after the roof deck or sheathing, all framing, fire blocking and bracing are in place and all pipes, chimneys and vents to be concealed are complete and the rough electrical, plumbing, heating wires, pipes and ducts are approved.

6. Types IV-A, IV-B and IV-C construction protection inspection. In buildings of Types IV-A, IV-B and IV-C construction, where connection fire-resistance ratings are provided by wood cover calculated to meet the requirements of Section 2304.10.1 of the California Building Code adopted in Chapter 18.40, inspection of the wood cover shall be made after the cover is installed, but before any other coverings or finishes are installed.

7. Lath, gypsum board and gypsum panel product inspection. Lath, gypsum board and gypsum panel product inspections shall be made after lathing, gypsum board and gypsum panel products, interior and exterior, are in place, but before any plastering is applied or gypsum board and gypsum panel product joints and fasteners are taped and finished.

8. Fire- and smoke-resistant penetrations. Protection of joints and penetrations in fire resistance-rated assemblies, smoke barriers and smoke partitions shall not be concealed from view until inspected and approved.

9. Energy efficiency inspections. Inspections shall be made to determine compliance with the California Energy Code adopted in Chapter 18.46 and shall include, but not be limited to, inspection for: envelope insulation R- and U-values, fenestration U-value, duct system R-value, and HVAC and water-heating equipment efficiency.

10. Reinforced concrete. When forms and reinforcing steel are in place ready for concrete.

11. Reinforced masonry. In grouted masonry when vertical reinforcing steel is in place and other reinforcing steel distributed and ready for placing, but before any units are laid up.

12. Structural steel. When structural steel members are in place and required connections are complete, but before concealing any members or connection.

13. Other inspections. In addition to the inspections specified in this subsection, the Building Official is authorized to make or require other inspections of any construction work to ascertain compliance with the provisions of this title and other laws that are enforced by the Building Official.

14. Special inspections. When special inspections are required by Chapter 17 of the California Building Code adopted in Chapter 18.40.

15. Final inspection. Final inspection shall be made after all work required by the permit is completed and prior to occupancy. If located in a flood hazard area, flood hazard documentation required in Chapter 16 and Appendix G of the California Building Code adopted in Chapter 18.40 or Chapter 3 of the California Residential Code adopted in Chapter 18.41, as applicable, shall be submitted to the Building Official prior to final inspection.

B. Electrical. The Building Official, upon notification as specified in Section 18.07.030, shall make the inspection and approval of electrical installation as set forth in subsection, if applicable.

1. Inspection required. All electric wiring or installation in or on any building or structure of any nature, or tent, or premises, except as otherwise exempted in this title, for which a permit is required must be inspected and approved by the Building Official before being energized or used.

2. Prohibited use, operation or maintenance. No person shall use, operate or maintain, or cause or permit to be used, operated or maintained, any such electric wiring until such inspection and approval. No serving agency shall furnish or supply or cause or permit to be furnished or supplied, electric energy to any such electric wiring until such inspection and approval.

3. Prohibited concealment or enclosure of electrical wiring. No person shall conceal, enclose or cover, or cause or permit to be concealed, en-

closed or covered, any portion of any electric wiring in any manner that will interfere with or prevent the inspection and approval thereof.

4. Prohibited obstruction to inspection. Any portion of any floor, ceiling, wall, partitions, roof, finish or other obstruction whatsoever which renders impracticable the making of a complete and thorough inspection of electric wiring shall be removed upon notice to do so, and shall be kept removed until such electric wiring has been inspected and approved.

5. Removal of foreign material in junction boxes and wire enclosures. Before a final inspection of any electric wiring, all plaster, concrete or other foreign material shall be thoroughly removed from every junction box and wiring enclosure, and not less than six (6) inches of jointless conductors shall extend out of each lighting outlet box for future connection thereto, except when conductors are intended to loop through the lamp holder.

6. Fixture connection. Fixtures or appliances shall not be connected to electric wiring until the rough wiring has been inspected and approved by the Building Official.

7. Free of defects. All such wiring shall be free from grounds, shorts, or other defects, before approval thereof.

8. Exemption. The provisions of this subsection shall not apply to finished work or to conductors inserted in conduit or other wiring enclosures. Nothing contained in this subsection shall be construed to prohibit the temporary use of electric energy when and as specifically provided in this title. Nothing contained in this subsection shall be construed to prohibit the inspection of any electric wiring even though no permit is required therefore.

9. Final inspection. Final inspection shall be made after all work required by the permit is completed and found to be in compliance with the provisions of this title, the Building Official shall leave a notice at the service switch or other suitable place so stating, and shall issue a certificate of inspection or approval tag when requested, or service permit, authorizing the connection to the electrical service and the energizing of the installation.

C. Plumbing. The Building Official, upon notification as specified in Section 18.07.030, shall make the inspection and approval of plumbing installation as set forth in subsection, if applicable.

1. Inspection required. All plumbing installation in or on any building or structure of any nature, or tent, or premises, except as otherwise exempted in this title, for which a permit is required must be inspected and approved by the Building Official.

2. Gas supply or meter. No person shall furnish or supply gas to any gas piping or install any meter therefore until all plumbing as regulated by this title has been installed and approved by the Building Official and a certificate of final inspection has been issued.

EXCEPTION: Notwithstanding anything in this chapter to the contrary, gas service may be supplied to gas piping for construction purposes only and a gas meter may be installed therefore under the following conditions:

a. The owner of the building or a duly authorized representative shall apply to the Building Official for such gas service and shall pay a fee as set forth in the schedule of fees and charges established by City Council resolution in connection with such application to the Building Official. The application for such gas service shall not be granted until all gas piping in the structure affected has been tested and approved pursuant to the California Plumbing Code adopted in Chapter 18.43.

b. Such service shall not be permitted for an initial period in excess of thirty (30) days. The Building Official may impose such reasonable requirements and regulations in connection therewith as he or she may deem necessary. For good cause, the Building Official may extend such period of time in his or her reasonable discretion.

3. Prohibited concealment of installation. No person shall fail, neglect or refuse to leave and keep any plumbing, as regulated by this title, open, uncovered and convenient for inspection until such

plumbing has been inspected and approved by the Building Official, and any obstruction whatsoever, which interfered with a complete and thorough inspection of any plumbing, shall be removed upon notice so to do, and shall be left and kept removed until such plumbing has been inspected and approved.

4. Location of installation. Piping, fixtures or equipment shall not be located in such manner as to interfere with the normal operation of windows, doors or other required means of access.

5. Services to be capped when building removed. Where a building is demolished or removed from its site, the building sewer, water and gas service shall be properly capped to the satisfaction of the Building Official.

6. Final inspection. Final inspection shall be made after all work required by the permit is completed and found to be in compliance with the provisions of this title, the Building Official shall leave a notice at a suitable place so stating, and when requested shall authorize the furnishing or supplying of gas to any gas piping or the installation of any meter.

D. Mechanical. The Building Official, upon notification as specified in Section 18.07.030, shall make the inspection and approval of mechanical installation as set forth in subsection, if applicable.

1. Inspection required. All mechanical installation in or on any building or structure of any nature, or tent, or premises, except as otherwise exempted in this title, for which a permit is required must be inspected and approved by the Building Official.

2. Prohibited concealment of installation. That portion of any equipment intended to be concealed by any permanent portion of the building shall not be concealed until inspected and approved by the Building Official.

3. Connection to fuel or power supply. Equipment regulated by this title shall not be connected to the fuel or power supply until authorized by the Building Official.

4. Failure to comply. A final inspection approval may, upon notice, be revoked by the Building Official if he or she finds that the heating, ventilating, cooling, or refrigeration equipment fails in any respect to comply with the requirements of this title, or that the installation is unsafe, dangerous, or a hazard to life or property.

5. Final inspection. Final inspection shall be made after all work required by the permit is completed and found to be in compliance with the provisions of this title, the Building Official shall leave a notice at a suitable place so stating, and shall authorize the connection to the fuel or power supply for the installation.

E. Grading. The Building Official, upon notification as specified in Section 18.07.030, shall make the inspection and approval of grading, excavations or fills operation as set forth in subsection, if applicable:

1. Initial meeting/inspection. When the permit holder or their duly authorized agent is ready to begin work, but before any grading operation or brushing is started, a meeting shall be held at the project site with the contractor and the inspectors to discuss the approved construction documents, soil reports and the sequence of the grading operations.

2. Toe inspection. After the natural ground is exposed and prepared to receive fill, but before any fill is placed.

3. Excavation inspection. After the excavation is started, but before the vertical depth of the excavation exceeds ten (10) feet.

4. Fill inspection. After the fill placement is started, but before the vertical height of the lifts exceeds ten (10) feet.

5. Drainage device inspection. After forms and pipes are in place, but before any concrete is placed.

6. Rough grading. When all rough grading has been completed. This inspection may be called for at the completion of the rough grading without the necessity of the Building Official having previously reviewed and approved reports.

7. Final. When all work, including installation of all drainage structures or other protective devices, has been completed and the as-graded construction document and required reports have

been submitted. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.07.060 Surveys.

In the absence of any designation of the proper location of the lot on which a building or structure is to be erected, for which a building permit has been issued, the Building Official may require the permit holder or their duly authorized agent to have the lot surveyed and staked by a registered land surveyor or registered civil engineer licensed in the State of California to practice as such so that the proper location of the building or structure on the lot may be determined and to verify compliance of the building or structure with the approved construction documents. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.07.070 Non-inspected work.

No person, firm or corporation shall own, use, occupy or maintain any building or structure on which non-inspected work has been performed. For the purpose of this title, "non-inspected work" shall be defined as and include but not limited to any erection, construction, enlargement, alteration, repair, remodel, movement, removal, improvement, conversion or demolition for which a permit was first obtained, but which has progressed beyond the point indicated in successive inspections, including, but not limited to, inspections as set forth in Section 18.07.050 and Chapter 17 of the California Building Code adopted in Chapter 18.40, without first obtaining inspection by and approval of the Building Official. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.07.080 Special inspections.

A. When required. In addition to the inspections to be made by the Building Official as specified in this chapter, the owner or the owner's authorized agent, other than the contractor, shall employ one (1) or more special inspectors who shall provide inspections during construction on the types of work listed in Chapter 17 of the California Building Code adopted in Chapter 18.40. The special inspector shall be qualified under Subsection 18.07.080.B.

B. Qualifications of special inspector. The registered special inspector shall be a qualified person who shall demonstrate his or her competence pursuant to Subsection 18.07.080.C, to the satisfaction of the Building Official, for inspection of the particular type of construction or operation requiring special inspection.

C. Examination and certificate.

1. Requirement. Any person desiring to be registered as a registered inspector shall first qualify by passing a written or oral examination or both, given by the Building Official. Upon application for such examination, such person shall pay to the City a nonrefundable registration fee as set forth in the schedule of fees and charges established by City Council resolution.

2. Certificate. Every applicant passing such examination shall be issued a certificate as a registered inspector upon payment of a fee as set forth in the schedule of fees and charges established by City Council resolution.

3. Expiration. All certificates issued by the Building Official shall expire three (3) year from the date issued, and may be renewed from year to year upon the payment of an annual fee as set forth in the schedule of fees and charges established by City Council resolution. Application for renewal shall be made within thirty (30) days following the date of expiration. Expired certificates may be renewed within sixty (60) days following the date of expiration; provided, that the renewal fee shall be as set forth in the schedule of fees and charges established by City Council resolution. After a certificate has expired, it shall not be renewed, and an application, nonrefundable fee and a reexamination will be required.

D. Revocation of registration. The Building Official may revoke the registration of any registered special inspector, or the assignment of such

registered special inspector to any particular building or structure, for incompetency or failure to conscientiously carry out his or her duties as specified in Subsection 18.07.080.E, in which event the Building Official may stop all further work upon the building or structure involved until some other person has been qualified, registered and assigned thereto by the Building Official.

E. Duties of special inspector.

1. Time at the jobsite. The registered special inspector shall be employed on the work, without expense or liability to the City, either on a full time or part time basis, depending upon the magnitude of the work as determined by the Building Official. The determination of the percentage of time necessary for the job shall be left to the discretion of the registered special inspector, subject to approval of the Building Official.

2. Responsibility. The registered special inspector shall bear a joint responsibility to the owner or the owner's authorized agent and the Building Official. He or she shall not be an employee of the City, the contractor, a subcontractor or a material vendor. The assignments of the registered special inspector to each job shall be reported to the Building Official before commencing work.

3. Duties. In addition to required verification and inspection specified in Chapter 17 of the California Building Code adopted in Chapter 18.40, the registered special inspector shall observe the work assigned to be certain it conforms to the approved construction documents. On such building or structure it shall be the duty of every registered special inspector to inspect carefully all materials proposed to be used in connection with any work covered by any permit issued by the Building Official, and the registered special inspector shall obtain full information regarding the strength and durability of new types of materials where their use involves structural safety. He or she shall make such reports in writing as may be required by the Building Official regarding the progress of the work, and any deviations, defects, delays, materials, working conditions and other matters which may in any manner affect the structural safety and strength of the building. He or she shall be directly responsible for enforcing all other ordinances and laws applicable to the work to which he or she is assigned.

4. Inspection report. The registered special inspector shall furnish inspection reports to the Building Official, the registered design professional in responsible charge and other designated persons. All discrepancies shall be brought to the immediate attention of the contractor for correction; then, if uncorrected, to the proper design authority and to the Building Official. He or she shall notify the Building Official of any attempt to cover, conceal, patch or repair any defect in materials or workmanship, and he or she shall report every infraction of any ruling of the Building Official. In furtherance of his or her aforesaid duties, he or she shall have the authority to compel the removal of defective materials and the correction of defective workmanship, or to suspend or stop further work pending a ruling of the Building Official.

5. Final report. The registered special inspector shall submit a final signed report stating whether the work requiring special inspection was, to the best of his or her knowledge, in conformance with the approved construction documents and the applicable workmanship provisions of this title.

F. Termination of duties.

1. Termination. Every registered inspector shall remain constantly upon the work to which he or she is assigned during the process of construction, and unless otherwise removed from the job, his or her duties shall terminate only when a certificate of compliance is issued by him or her and approved by the Building Official. Such certification of compliance shall bear a statement signed by the registered inspector stating that the work upon the building or structure to which he or she has been assigned has been completed in a satisfactory manner and that the regulations of this title affecting the structural features of such building or structure have been fully complied with. If there have been any infractions of this title, they shall be noted in this statement.

2. Certificate of compliance. The Building Official shall approve such certificate of compliance filed by the registered inspector if after inspection the structural features of such building or structure are found to be in accordance with the provisions of this chapter. Each certificate of compliance shall bear the legal description of the property upon which such building or structure is located and an identifying description of the building.

G. Waiver of special inspection. The requirement for employment of a registered special inspector may be waived if the Building Official finds that the construction is of minor nature. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.08 CERTIFICATE OF OCCUPANCY

18.08.010 Certificate required for use or occupancy.

In order to safeguard life and limb, health, property and public welfare, no building or structure shall be used or occupied, and no change in the existing use or occupancy classification of a building or structure or portion thereof shall be made until the Building Official has issued a Certificate of Occupancy therefore as provided in this chapter.

EXCEPTIONS:

1. Unless it is specifically required by the Building Official or other provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State, no existing building or structure, or portion thereof, shall require a Certificate of Occupancy, provided:

a. The occupancy and use housed therein is the same for which the original building permit was issued and a final inspection approved,

b. Alteration or repair are minor in nature and does not affect fire life-safety or structural stability of a building or structure, or portion thereof, as determined by the Building Official, and

c. The occupancy or use of a building or structure, or portion thereof, housing a Group A or E occupancy and has not been discontinued for a period of more than six (6) months.

2. No structure, the architecture of which inhibits occupancy, shall require a Certificate of Occupancy.

3. Certificate of Occupancy are not required for work not in scope of this title under Section 18.01.040 or work exempt from permits under Section 18.04.020.

Issuance of a Certificate of Occupancy shall not be construed as an approval of a violation of the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State. Certificates presuming to give authority to violate or cancel the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State shall not be valid. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.08.020 Issuance of certificates.

When required by Section 18.08.010, after the Building Official inspects the building or structure and finds no violations of the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State that are enforced by the Building Official or other departments or agencies within the City, and after other applicable City departments or agencies as determined by the Building Official have reported that all required public improvements have been completed, the Building Official shall issue a Certificate of Occupancy that contains the information specified in Section 18.08.030.

When a Certificate of Occupancy is issued, it shall supersede every certificate previously issued for that portion of the building or structure, or portion thereof, described thereon. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.08.030 Contents of certificate.

Each certificate shall contain the following:

1. The building permit number.

2. The address of the building or structure.

3. The name and address of the owner.

4. A description of that portion of the building or structure for which the certificate is issued.

5. A statement that the described portion of the building or structure has been inspected for compliance with the requirements of this title for group and division of occupancy and the use for which the proposed occupancy is classified.

6. The name of the Building Official.

7. The edition of the code under which the building permit was issued.

8. The use and occupancy, in accordance with the provisions of Chapter 3 of the California Building Code adopted in Chapter 18.40.

9. The type of construction as defined in Chapter 6 of the California Building Code adopted in Chapter 18.40.

10. The design occupant load.

11. If an automatic sprinkler system is provided, the type of automatic sprinkler system and whether the sprinkler system is required.

12. Any special stipulations and conditions of the building permit.

13. The signature of the Building Official. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.08.040 Temporary certificate.

Notwithstanding the provisions of Section 18.08.020, if the Building Official finds that no substantial hazard will result from the occupancy of any building or structure, or portion thereof, before the same is completed, and satisfactory evidence is submitted that the work could not have been completed prior to the time such occupancy is desired because of its magnitude or because of unusual construction difficulties, and where other applicable City departments or agencies as determined by the Building Official have reported that all required public improvements have been completed, the Building Official may issue a Temporary Certificate of Occupancy for any building or structure, or portion thereof.

The Building Official may issue a Temporary Certificate of Occupancy notwithstanding the fact that all required public improvements have not been completed, if the Building Official finds that the failure to complete the public improvements was due to circumstances over which the person applying for the Certificate of Occupancy had no control.

In addition, the Building Official may issue a Temporary Certificate of Occupancy for an existing building or structure, or portion thereof, provided no substantial hazard will result and satisfactory evidence is submitted justifying the need for such temporary occupancy.

Permit applicants for a Temporary Certificate of Occupancy shall pay an investigation fee as set forth in Section 18.06.180 for which approval of temporary occupancy is sought, including extending a Temporary Certificate of Occupancy beyond thirty (30) day or for each additional thirty (30) day period or fraction thereof.

The Temporary Certificate of Occupancy of any building or structure shall not exceed one hundred eighty (180) days. Requests for additional temporary occupancy may be granted at the discretion of the Building Official, however, additional requirements dependent on the circumstances may apply. A Temporary Certificate of Occupancy shall not be used to delay the payment of outstanding fees, including but not limited to development impact fees, sewer capacity fees, and school developer fees. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.08.050 Posting.

The Certificate of Occupancy shall be posted in a conspicuous place on the premises and shall not be removed except by the Building Official.

EXCEPTION: One- or two-family dwelling and related accessory building and structure. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.08.060 Revocation.

The Building Official may, in writing, suspend or revoke a Certificate of Occupancy or Temporary Certificate of Occupancy issued under the provisions of this title whenever the certificate is issued in error, or on the basis of incorrect information supplied, or when it is determined that the occupancy or the maintenance of any building or structure, or portion thereof, continues contrary to or in violation of any provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State, and such continued occupancy or maintenance will result in the exposure of occupants and/or people in the vicinity to hazardous, dangerous or unsafe conditions. Such suspension or revocation shall be immediate but shall be subject to appeal in accordance with the provisions of Chapter 18.10. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.09 VIOLATIONS

18.09.010 General.

It shall be unlawful for any person, firm or corporation to:

1. Erect, construct, alter, extend, repair, move, remove, demolish or occupy any building, structure or equipment in the City regulated by this title, or cause same to be done, in conflict with or in violation of any of the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State. Maintenance of any building, structure or equipment that was unlawful at the time it was erected, constructed, altered, extended, repaired, moved, removed, demolished or occupied and which would be unlawful under this title if completed after the effective date of this title shall constitute a continuing violation of this title.

2. Grade, excavate or fill any land in the City regulated by this title, or cause same to be done, in conflict with or in violation of any of the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State.

3. Install, alter, repair, replace, add to, relocate, use or maintain electrical systems, equipment, appliances, fixtures, fittings and appurtenances thereto in the City, or cause or permit the same to be done, contrary to or in violation of any of the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State. Maintenance of electrical installation that was unlawful at the time it was installed and which would be unlawful under this title if installed after the effective date of this title shall constitute a continuing violation of this title.

4. Use or maintain any plumbing, gas piping or water piping or to use, occupy or maintain any building, structure or premises containing any plumbing, gas piping or water piping in the City, or cause or permit the same to be done, contrary to or in violation of any of the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State. Maintenance of plumbing or plumbing installation that was unlawful at the time it was installed and which would be unlawful under this title if installed after the effective date of this title shall constitute a continuing violation of this title.

5. Erect, install, alter, repair, relocate, add to, replace, use, or maintain heating, ventilating, cooling, or refrigeration equipment in the City, or cause or permit the same to be done, contrary to or in violation of any of the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State. Maintenance of mechanical equipment that was unlawful at the time it was installed and which would be unlawful under this title if installed after the effective date of this title shall constitute a continuing violation of this title.

The permissive provisions of this title shall not be presumed to waive any limitations imposed by any of the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.09.020 Notice of violation.

Pursuant to Section 18.03.020, the Building Official is authorized to serve a notice of violation or order on the person, firm or corporation responsible for the erection, construction, alteration, extension, repair, moving, removal, demolition or occupancy of a building or structure in violation of the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State; or in violation of a permit or certificate issued under the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State. Such notice or order shall direct the discontinuance of the illegal action or condition and the abatement of the violation. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.09.030 Prosecution of violation.

If the notice of violation or order is not complied with promptly or within the time limit specified therein, the Building Official is authorized to request the legal counsel of the City to institute the appropriate proceeding at law or in equity to restrain, correct or abate such violation, or to require the removal or termination of the unlawful occupancy of the building or structure in violation of the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State or of the order or direction made pursuant thereto. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.09.040 Violation penalties.

Any person, firm or corporation who violates the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State or fails to comply with any of the requirements thereof or who erects, constructs, alters or repairs a building or structure in violation of the approved construction documents or directive of the Building Official, or of a permit or certificate issued under the provisions of this title, shall be subject to penalties as prescribed by law. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.09.050 Violation for obtaining permit without owner's consent.

Every person, firm or corporation who knowingly and willfully procures a permit without the consent of the owner of record of the property for which the permit is issued, or such person's, firm's or corporation's agent, may be guilty of a misdemeanor as determined by the legal counsel of the City.

EXCEPTION: This section shall not apply to permits obtained pursuant to and in compliance with an order of a court of law or a governmental agency. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.09.060 Making false statement.

Any person, firm or corporation who willfully or knowingly, with the intent to deceive, makes a false statement or representation, or knowingly fails to disclose a material fact in any documentation required by the Building Official to ascertain facts relative to this title, including any oral or written evidence presented, may be guilty of a misdemeanor as determined by the legal counsel of the City. The Building Official may, in writing, suspend or revoke a permit issued under provisions of this title whenever the permit is issued in error or on the basis of incorrect, inaccurate or incomplete information supplied, or in violation of any provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State.

For the purposes of this section, a "person" includes any person who is a registered special inspector, a structural inspector, a certified welder or a certified licensed contractor. The term "writing" shall include, but is not limited to, forms, applications, approvals, reports or certifications required by the Building Official. Every violation

of this title may be punishable as a misdemeanor as determined by the legal counsel of the City. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.09.070 Unpermitted structures.

No person, firm or corporation shall own, use, occupy or maintain any "unpermitted structure." For the purpose of this title, "unpermitted structure" shall be defined as any structure, or portion thereof, that was erected, constructed, enlarged, altered, repaired, remodeled, moved, removed, improved, converted or demolished at any point in time, without the required permit(s) having first been obtained from the Building Official, pursuant to Section 18.04.010. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.09.080 Validity of approval.

A. Approval not a violation of title. Approval as a result of a plan examination or an inspection shall not be construed to be an approval of a violation of the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State applicable thereto. Plan examinations or inspections presuming to give authority to violate or cancel the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State applicable thereto shall not be valid. No approval shall relieve or exonerate any person from the responsibility of complying with the provisions and intent of this title, municipal code or other ordinances of the City, or laws and statutes of the State.

B. Correction of errors. The issuance of a permit based upon approved construction documents shall not prevent the Building Official from thereafter requiring the correction of errors on the construction documents or from preventing construction being carried on thereunder when in violation of the provisions of this title, municipal code or other ordinances of the City, or laws and statutes of the State. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.10 BOARD OF APPEALS

18.10.010 General regulations.

The provisions of Chapter 2.18 provide uniform general regulations applicable to advisory boards, commissions and committees of the City for the performance of various prescribed duties and functions. In the event any provision of Chapter 2.18 conflicts with a specific provision of this Title, such specific provision of this Title shall control. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.10.020 Board of Examiners, Appeals and Condemnation.

A. General. The Board of Examiners, Appeals and Condemnation is created pursuant to Ordinance No. C-5332 in 1977 and amended pursuant to Ordinance No. C-5709 in 1981 and Ordinance No. 14-0019 in 2014. The Board of Examiners, Appeals and Condemnation provide a forum to hear and decide appeals of orders, decisions or determinations made by the Building Official relative to the following:

1. Application and interpretation of this Title, Municipal Code or other ordinances of the City, or laws and statutes of the State;

2. Correction of substandard, nonconforming or dangerous buildings or structures; or

3. Abatement of nuisance.

B. Member. The Board of Examiners, Appeals and Condemnation shall consist of seven (7) members, of which two (2) members shall be physically handicapped persons, qualified by experience and training to pass judgment upon matters pertaining to building construction. The City Manager shall recommend members for appointment by the Mayor and confirmation by the City Coun-

cil. Members shall serve two (2) year terms and shall be eligible for reappointment if their service does not exceed the eight (8) year maximum established by City Council. The Building Official shall serve as Secretary to the Board of Examiners, Appeals and Condemnation.

C. Duties. The Board of Examiners, Appeals and Condemnation shall conduct hearings on written appeals regarding any orders, decisions or determinations made by the Building Official as specified in Subsection 18.10.020.A. In the appeal, the Board of Examiners, Appeals and Condemnation may approve or disapprove the actions taken by the Building Official subject to the limitation of Section 18.10.040.

D. Procedure. The Board of Examiners, Appeals and Condemnation shall adopt reasonable rules and regulations for conducting its investigations and hearings, including those provisions provided for in Chapters 18.20, 18.21, 18.24, 18.25, 18.29, 18.30 and 18.60 where appropriate; and where not specifically provided otherwise by such rules, Robert's Rules of Order shall govern. All decisions and findings of the Board of Examiners, Appeals and Condemnation shall be in writing and shall be filed with the Secretary with copies to the interested parties. Four (4) members shall constitute a quorum for transaction of business; and each member, including the member serving as Chairman, shall be entitled to vote on any matter coming before the Board of Examiners, Appeals and Condemnation. All decisions shall be entered upon the minutes of the meetings of the Board of Examiners, Appeals and Condemnation, and the Building Official shall be guided in accordance therewith. All decisions of the Board of Examiners, Appeals and Condemnation shall be final and conclusive in the absence of fraud or prejudicial abuse of discretion.

E. Filing requirement. Any person aggrieved by any orders, decision or determination made by the Building Official as specified in Subsection 18.10.020.A may appeal to the Board of Examiners, Appeals and Condemnation within thirty calendar (30) days from the date of such actions by serving a written notice upon the Secretary of the Board. A written notice shall be submitted together with a fee as set forth in Section 18.06.100. Such written notice shall state that the applicant is dissatisfied with an order, decision or determination made by the Building Official and shall describe the nature of the complaint. Such appellant shall pay the cost of all tests made or ordered by the Board of Examiners, Appeals and Condemnation. Such notice shall be at once transmitted to the Board of Examiners, Appeals and Condemnation, and the Board of Examiners, Appeals and Condemnation shall thereafter fix a time and place for a hearing, at which time all persons interested in the appeal shall be heard. The Secretary shall give the appellant at least ten (10) days notice of hearing or as required in Chapters 18.20, 18.21, 18.24, 18.25, 18.29, 18.30 and 18.60, where appropriate. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.10.030 Advisory capacity.

The Board of Examiners, Appeals and Condemnation, upon request of the Building Official, may be called together in an advisory capacity in order to assist the Building Official. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.10.040 Limitations on authority.

A Notice of appeal shall be based on one of the following:

1. A claim that the true intent of the provisions of this Title, Municipal Code or other ordinances of the City, laws or statutes of the State, or the rules legally adopted thereunder has been incorrectly interpreted;

2. A claim that the provisions of this Title, Municipal Code or other ordinances of the City, or laws or statutes of the State do not fully apply; or

3. A claim that an equivalent or better form of construction is/was proposed.

The Board of Examiners, Appeals and Condemnation shall not have the authority to waive the provisions or interpret the administration of this Title, Municipal Code or other ordinances of the City, laws and statutes of the State, or the rules legally adopted thereunder. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.10.050 Compensation.

Each member of the Board of Examiners, Appeals and Condemnation shall be paid by the City, as compensation for his or her services, such sum as may, from time to time, be provided by ordinance. Such compensation shall in no way void a member's eligibility for obtaining any City work in the course of his or her private practice or business. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.11 BUILDING ADDRESS AND NUMBER

18.11.010 Installation authority.

The Building Official is authorized and instructed to install a system of addresses and numbers for buildings in the City. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.11.020 Baseline established.

Ocean Boulevard is determined to be the baseline for building addresses and building numbers on all intersecting highways shall commence with numbers one and two at the baseline and continue northerly and southerly, respectively, to the termini of such highways, or to the City limits, allowing as near as practicable one hundred (100) numbers to each block. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.11.030 Meridian line established.

The meridian line for building addresses shall be a line running from the Pacific Ocean along the centerline of Pine Avenue to the centerline of Country Club Drive; thence in a direct line to a point in the centerline of Long Beach Boulevard two hundred feet (200′) southerly of Forty-Eighth Street: and thence along the centerline of Long Beach Boulevard to the northerly City limits. Building numbers on all intersecting highways shall commence with the numbers one hundred (100) and one hundred one (101) at the meridian line and continue easterly and westerly, respectively, to the termini of such highway or to the City limits allowing as near as practicable one hundred (100) numbers to the block. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.11.040 Odd and even building numbers.

Odd building numbers shall be used on the northerly and westerly sides, and even building numbers on the southerly and easterly sides of all highways. Where practicable, twelve and one-half feet (12½′) of street frontage shall be allowed for each building number. Where necessary, fractional numbers may be used. Where building addresses are required for rear designations, the building number in front thereof shall be used with letter suffixes. All highways not intersecting a base or meridian line shall be numbered in accordance with the numbering of highways parallel thereto. In any special case, such as a curved street or street not parallel either to the base line or meridian, the system may be modified in such a manner as, in the opinion of the Building Official, will best fit the conditions of such special case. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.11.050 Notice to affix building numbers.

The Building Official shall notify the owner or person in control of every building in the City not having a building numbered in accordance with this chapter designated for the principal entrance or entrances thereto; and the owner or person in control of the building shall, within five (5) days after such notice, place, or cause to be placed, the building number or numbers so designated in Ar-

abic digits, each of which shall be not less than three inches (3") in height, upon the door header, doorjamb, porch post, front steps or other place near the designated entrance or entrances to the building in plain view from the highway in front thereof. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.11.060 Changing building address.

The Building Official shall have the authority to change addresses of existing buildings if:

A. The change of building address is necessary to comply with the requirements of this chapter; or

B. The change of building address requested by the owner of a building shall be accompanied by a fee as set forth in the schedule of fees and charges established by City Council resolution. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.11.070 Variance.

The Director, upon receipt of a written request for a variance from the building address and number requirements of this chapter, may grant such variance with respect to unique projects or projects of community-wide significance and magnitude. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

CHAPTER 18.15 POLICE FACILITIES IMPACT FEE

18.15.010 Legislative findings.

A. The State of California, through the enactment of Government Code Sections 66001 through 66009 has authorized the City to enact development impact fees.

B. The imposition of development impact fees is one of the preferred methods of ensuring that development bears a proportionate share of the cost of capital facilities and related costs necessary to accommodate such development. This must be done in order to promote and protect the public health, safety and welfare.

C. That the continuing increase in the development of residential and nonresidential construction in the City has created an urgency in that funds are needed for the increased demand for police services and the facilities that support those services which are required to serve the increasing residential and workforce population of the City.

D. The fees established pursuant to this chapter are derived from, are based upon, and do not exceed the costs of providing additional police services attributable to new residential or nonresidential construction, including: master planning to more specifically identify capital facilities to serve new development; the acquisition of additional property for police facilities; the construction of buildings for police services; the furnishing of buildings or facilities for police services; and the purchasing of equipment and vehicles for police services.

E. The fees collected pursuant to this chapter shall be used to finance the police facilities and equipment identified in Subsection 18.15.010.D.

F. Detailed study of the impacts of future residential and nonresidential construction in the City, along with an analysis of the need for new police facilities and equipment has been prepared. This study is included in the "Public Safety Impact Fee Study" for the City of Long Beach dated August 18, 2006, which is incorporated herein by reference as though set forth in full, word for word.

G. There is a reasonable relationship between the need for the police facilities and equipment set forth in Subsection 18.15.010.D and the impacts of the types of development for which the corresponding fee is charged.

H. There is a reasonable relationship between the fee's use and the type of development for which the fee is charged.

I. There is a reasonable relationship between the amount of the fee and the cost of the facilities and equipment or portion thereof attributable to

the development on which the fee is imposed. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.15.020 Purpose.

A Police Facilities Impact Fee is imposed on residential and nonresidential development for the purpose of assuring that the impacts created by said development pay its fair share of the costs required to support needed police facilities and related costs necessary to accommodate such development. (ORD-25-0019 § 1(Exh. A), 2025; ORD-19-0031 § 1(Exh. A), 2019)

18.15.030 Definitions.

For purposes of this chapter, the words and terms defined herein shall have the meanings stated, unless another meaning is plainly intended. To the extent that the words and terms utilized in this chapter are not defined herein, but are defined in Title 18 or the zoning regulations, such words and terms shall have the meanings stated therein.

"Accessory use" is as defined in Section 21.15.060.

"Applicant" means the property owner, or duly designated agent of the property owner, for which a request for building permit or construction approval for a mobile home pad is received by the City.

"Calculation" means the point in time at which the City calculates the Police Facilities Impact Fee to be paid by the applicant. Calculation will generally occur at the time of issuance of the applicable building permit or construction approval for a mobile home pad but may occur earlier in the development approval process.

"City Manager" means the City Manager of the City of Long Beach or other municipal officials he or she may designate to carry out the administration of this chapter.

"Collect" or "collection" means the point in time at which the Police Facilities Impact Fees are paid by the applicant. Collection will occur on the date of final inspection or the date a Certificate of Occupancy or Temporary Certificate of Occupancy, whichever occurs first, or in the case of a mobile home pad or pads, collection will occur at or on the date of construction approval is issued.

"Development" means residential and/or nonresidential development to an undeveloped, partially developed or redeveloped site and involving the issuance of a building permit for such construction, reconstruction or use. Development also includes the approval and construction of new mobile home pads in existing or new mobile home parks or sites.

"Dwelling unit" or "DU" is as defined in Section 21.15.910.

"Fee-setting resolution" means the City resolution specifying the Police Facilities Impact Fee per dwelling unit or mobile home pad for residential development and per gross floor area for nonresidential development, by type and by location. The Police Facilities Impact Fee set forth in the fee-setting resolution may be revised pursuant to Section 18.15.140 and applicable State law.

"Gross floor area" means the construction of floor area (in square feet) of a nonresidential development measured from the exterior building lines of each floor with respect to enclosed spaces, excluding dwelling units and parking facilities. For purposes of this chapter, the term "enclosed spaces" specifically includes, but is not limited to, an area available to and customarily used by the general public and all areas of business establishments generally accessible to the public such as fenced, or partially fenced in areas of garden centers attached to and serving the primary structure.

"Mixed use" is as defined in Section 21.15.1760.

"Mobile home" is as defined in Section 21.15.1770.

"Nonresidential development" means a development undertaken for the purpose of constructing gross floor area that includes, but is not limited to, commercial, industrial, retail, office, hotel/motel, and warehouse uses involving the issuance of a building permit for such construction.

"Parking facility" means a building or structure, or portion thereof, that provides parking spaces for vehicles; and which may include, but is not limited to, the ancillary facilities such as side-

walks, drainage area, lighting, landscaping, striping, exits and entrances, signage, waiting areas and other related areas or uses as determined by the Director.

"Police Department" means the Police Department of the City of Long Beach.

"Principal use" is as defined in Section 21.15.2170.

"Residential development" means a development undertaken for the purpose of: (i) constructing a dwelling unit or units; or (ii) the alteration or change of use of an existing building or structure that results in new dwelling unit or units and involving the issuance of a building permit for such construction, reconstruction or use, or the construction approval for a mobile home pad or pads. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.15.040 Fund established.

A Police Facilities Impact Fee fund is established. The Police Facilities Impact Fee fund is a fund to be utilized for payment of the actual or estimated costs of police facilities and equipment related to residential and nonresidential developments as described in this chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.15.050 Police Facilities Impact Fee.

There is imposed a Police Facilities Impact Fee on all residential and nonresidential developments as those terms are defined in this chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.15.060 Fee imposed.

A. Any person who, after the effective date of this chapter, seeks to engage in residential or nonresidential developments, including mobile home as defined in this chapter, by obtaining a building permit, or construction approval for a mobile home pad or pads, is required to pay a Police Facilities Impact Fee in the manner and amount as set forth in the fee-setting resolution.

B. No Certificate of Occupancy, Temporary Certificate of Occupancy, final inspection approval or construction approval for a mobile home pad or pads, as applicable, for the activities listed in Subsection 18.15.060.A shall be issued unless and until the Police Facilities Impact Fee required by this chapter has been paid to the City. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.15.070 Calculation of Police Facilities Impact Fee.

A. The Director shall calculate the amount of the applicable Police Facilities Impact Fee due as a condition precedent to the issuance, and at any time prior to, the building permit or construction approval for a mobile home pad or pads based upon the applicable impact fee rate as specified in the fee-setting resolution.

B. The Director shall calculate the amount of the applicable Police Facilities Impact Fee due by:

1. Determining the number and type of dwelling units in a residential development or mobile home pads in a mobile home park or site and multiplying the same by the Police Facilities Impact Fee amount as established by the fee-setting resolution per dwelling unit or pad.

2. Determining the gross floor area, type of use and location in a nonresidential development, and multiplying the same by the Police Facilities Impact Fee amount as established by the fee-setting resolution per square foot.

3. Determining the number and type of dwelling units in the residential development portion and the gross floor area, type of use and location in the nonresidential development portion of a building or structure containing mixed uses and multiplying the same by the Police Facilities Impact Fee amount as established by the fee-setting resolution for each use.

4. Determining the gross floor area, type of use and location in a building or structure contain-

ing mixed uses that include two (2) or more principal uses in nonresidential development portion and multiplying the same by the Police Facilities Impact Fee amount as established by the fee-setting resolution for each use. The gross floor area of any accessory use will be charged at the same rate as the predominant principal use unless the Director finds that the accessory use is related to another principal use. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.15.080 Collection of Police Facilities Impact Fee.

A. The City shall collect from the applicant the Police Facilities Impact Fee prior to the issuance of a Certificate of Occupancy, Temporary Certificate of Occupancy, final inspection or construction approval for mobile home pad or pads, whichever occurs first.

B. Except for an administrative charge that shall be allocated to the Department of Community Development, all funds collected shall be properly identified and promptly transferred for deposit in the Police Facilities Impact Fee fund and used solely for the purposes specified in this chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.15.090 Use of funds.

A. Funds collected from the Police Facilities Impact Fee shall be used to fund the costs of providing additional police services attributable to new residential and nonresidential developments including mobile home and shall include:

1. The acquisition of additional property for law enforcement facilities;

2. The construction of new buildings for law enforcement services;

3. The furnishing of new buildings or facilities for law enforcement services;

4. The purchasing of equipment and vehicles for law enforcement services;

5. The funding of a master plan to identify capital facilities to serve new Police Department development; and

6. The cost of financing (e.g., interest payments) related to Subsections 1 through 5, inclusive.

B. Funds shall not be used for periodic or routine maintenance.

C. In the event that bonds or similar debt instruments are issued for advanced provision of capital facilities for which Police Facilities Impact Fees may be expended, impact fees may be used to pay debt service on such bonds or similar debt instruments to the extent that the facilities provided are of the type described in Subsection 18.15.090.A.

D. Funds may be used to provide refunds as described in Section 18.15.100. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.15.100 Refund.

A. Any applicant who has paid a Police Facilities Impact Fee pursuant to this chapter may apply for a full or partial refund of same, if, within one (1) year after collection of the Police Facilities Impact Fee the development has been modified, pursuant to appropriate City ordinances and regulations, resulting in: (i) a reduction of the number of dwelling units in a residential development or portion of a residential development in a building or structure with mixed uses, (ii) a change in the type of dwelling units, (iii) a reduction of the gross floor area in a nonresidential development or portion of a nonresidential development in a building or structure with mixed uses, or (iv) the applicability of an exemption pursuant to Section 18.15.110. The City shall retain a sum equaling twenty percent (20%) of the impact fee paid by the applicant to offset the administrative costs of refund. The applicant must submit an application for such a refund in accordance with Chapter 3.48. In no event shall a refund exceed the amount of the Police Facilities Impact Fee actually paid.

B. Any funds not expended, encumbered or obligated by issued indebtedness by the end of the

calendar quarter immediately following five years from the date the Police Facilities Impact Fee was paid shall, upon application of the current landowner, be returned to such landowner with interest at a rate equal to the rate of interest earned by the City from the time the fee was paid, provided that the landowner submits an application for a refund within one hundred eighty (180) calendar days from the expiration of the five-year period. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.15.110 Exemptions and credits.

A. Exemptions. Any claim of exemption must be made no later than the time of building permit issuance or mobile home construction approval. The following uses and types of development specified in this section are exempted from the payment of the Police Facilities Impact Fee:

1. Nonresidential development.

a. Construction of a nonresidential building or structure or an addition to an existing nonresidential building or structure of three thousand (3,000) square feet or less of gross floor area.

b. Parking facilities.

c. Hospitals as that term is defined in Section 21.15.1370.

2. Residential development. The exemption provided herein shall not apply to residential tract development, residential development of more than one (1) unit per lot, or to the replacement of a single-family dwelling with more than one (1) dwelling unit.

a. Construction, replacement or rebuilding of (i) a single-family dwelling (one unit per lot) on an existing lot of record.

b. Replacement of one (1) mobile home with another on the same pad.

c. Legalization of an illegal dwelling unit existing prior to January 1, 1964, for which an administrative use permit is approved in accordance with Subsection 21.25.403.D.

d. Moving and relocation of a single-family home from one (1) lot within the City to another lot within the City.

e. Property rented, leased, sold, conveyed or otherwise transferred, at a rental price or purchase price which does not exceed the "affordable housing cost" as defined in Section 50052.5 of the California Health and Safety Code when provided to a "lower income household" as defined in Section 50079.5 of the California Health and Safety Code or "very low-income household" as defined in Section 50105 of the California Health and Safety Code or "moderate income household" as defined in Section 50093 of the Health and Safety Code. This exemption shall require the applicant to execute an agreement to guarantee that the units shall be maintained for very low, lower or moderate-income households, as applicable, whether as units for rent or for sale or transfer, for the lesser of a period of fifty-five (55) years or the actual life or existence of the structure, including any addition, renovation or remodeling thereto. The agreement shall be in the form of a deed restriction or other legally binding and enforceable document acceptable to the City Attorney and shall bind the owner and any successor-in-interest to the real property being developed. The agreement shall subordinate, if required, to any State or federal program providing affordable housing to very low, lower and moderate-income households. The agreement shall be recorded with the Los Angeles County Recorder prior to the issuance of a Certificate of Occupancy. The City's Housing and Neighborhood Services Bureau shall be notified of pending transfers or purchases and give its approval of the purchaser's qualifying income status and purchase price, prior to the close of escrow. The City's Housing and Neighborhood Services Bureau shall be notified of pending rentals and give its approval of proposed tenant's qualifying income status and rental rate, prior to the tenant's occupancy. Applicant or any successor-in-interest shall be required to provide annually, or as requested, the names of all tenants or purchasers, current rents, and income certification to ensure compliance. Voluntary removal of the housing restriction or violation of the restriction shall be enforced by the City's Housing and Neighborhood Services Bureau and shall require the applicant or any successor-in-interest to pay the then

applicable Police Facilities Impact Fee at the time of voluntary conversion or as imposed at the time of violation on the unit in violation, plus any attorneys' fees and costs of enforcement, if applicable.

f. The installation of a replacement mobile home on a lot or other such site when a Police Facilities Impact Fee for such mobile home site has previously been paid pursuant to this chapter, or where a mobile home legally existed on such site on or prior to the effective date of the ordinance codified in this chapter.

3. Other construction work. Where no additional dwelling unit or units and/or no gross floor area is added, the following construction work is exempt:

a. The alteration, remodeling, rehabilitation, or other improvements or modifications to existing buildings or structures.

b. The rebuilding of existing buildings or structures destroyed by fire, flood, earthquake or other acts of God.

c. The rehabilitation or replacement of existing buildings or structures in order to comply with City mandated seismic safety requirements.

d. The rehabilitation or replacement of existing buildings or structures destroyed by imminent public hazard, acts of terrorism, sabotage, vandalism, warfare or civil disturbance; provided however that such destruction was not caused or in any manner accomplished, instigated, motivated, prompted, incited, induced, influenced, or participated in by any persons or their agents having any interest in the real or personal property at the location.

B. Credits. Any applicant whose development is located within a Community Facilities District (CFD), and is subject to the assessments thereof, shall receive an offset credit towards the fees established by this chapter to the extent that the assessments fund improvements within the CFD which would otherwise be funded by the development impact fees established by this chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-21-0035 § 1, 2021; ORD-19-0031 § 1(Exh. A), 2019)

18.15.120 Appeals.

A. An applicant may appeal, by protest, any imposition of the Police Facilities Impact Fee by filing a notice of appeal with the City Clerk within ninety (90) days after the applicant pays the required fee.

B. A valid appeal by protest of the imposition of the Police Facilities Impact Fee shall meet all of the following requirements:

1. Tendering in advance of the appeal any required payment in full or providing assurance of payment satisfactory to the City Attorney;

2. Serving written notice on the City including:

a. A statement that the required payment has been tendered under protest or that required conditions have been satisfied;

b. A statement informing the City of the factual elements of the dispute and the legal theory forming the basis of the protest;

c. The name and address of the applicant;

d. The name and address of the property owner;

e. A description and location of the property;

f. The number of residential units or nonresidential gross floor area proposed, by land use or dwelling unit type, as appropriate; and

g. The date of issuance of the building permit.

C. The City Council shall schedule a hearing and render a final decision on the applicant's appeal within sixty (60) days after the date the applicant files a valid appeal.

D. The City Council hearing shall be administrative. Evidence shall be submitted by the City and by the applicant and testimony shall be taken under oath.

E. The burden of proof shall be on the applicant to establish that the applicant is not subject to the imposition of the Police Facilities Impact Fee pursuant to the express terms of this chapter and applicable State law.

F. If the Police Facilities Impact Fee has been paid in full or if the notice of appeal is accompanied by a cash deposit, letter of credit, bond or other surety acceptable to the City Attorney in an

amount equal to the Police Facilities Impact Fee calculated to be due, the application for the building permit or mobile home construction approval shall be processed. The filing of a notice of appeal shall not stay the imposition or the collection of the Police Facilities Impact Fee calculated by the City to be due unless sufficient and acceptable surety has been provided.

G. Any petition for judicial review of the City Council's final decision shall be made in accordance with applicable State law and pursuant to Section 18.15.130. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.15.130 Judicial review.

A. Any judicial action or proceeding to attack, review, set aside, void or annul the ordinance codified in this chapter, or any provision thereof, or resolution, or amendment thereto, shall be commenced within ninety (90) days of the effective date of the ordinance codified in this chapter, resolution, or any amendment thereto.

B. Any judicial action or proceeding to attack, review, set aside or annul the imposition or collection of a Police Facilities Impact Fee on a development shall be preceded by a valid appeal by protest pursuant to Section 18.15.120 hereof and a final decision of the City Council pursuant thereto and shall be filed and service of process effected within ninety (90) days after the hearing on appeal regarding the imposition of a Police Facilities Impact Fee upon the development. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.15.140 Annual report and amendment procedures.

A. Within one hundred eighty (180) days after the last day of each fiscal year, the Police Chief shall evaluate progress in implementation of the Police Facilities Impact Fee program and shall prepare a report thereon to the City Council in accordance with Government Code Section 66006 incorporating among other things:

1. The police facilities and equipment commenced, purchased or completed utilizing monies from the Police Facilities Impact Fee fund;

2. The amount of the fees collected and the interest earned;

3. The amount of Police Facilities Impact Fees in the fund; and

4. Recommended changes to the Police Facilities Impact Fee, including, but not necessarily limited to, changes in the Police Facilities Impact Fee chapter or fee-setting resolution.

B. Based upon the report and such other factors as the City Council deems relevant and applicable, the City Council may amend the ordinance codified in this chapter or the fee-setting resolution implementing this chapter. Changes to the Police Facilities Impact Fee rates or schedules may be made by amending the fee-setting resolution. Any change which increases the amount of the Police Facilities Impact Fee shall be adopted by the City Council only after a noticed public hearing. Nothing herein precludes the City Council or limits its discretion to amend the ordinance codified in this chapter or the fee-setting resolution establishing Police Facilities Impact Fee rates or schedules at such other times as may be deemed necessary. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.15.150 Effect of Police Facilities Impact Fee on zoning and subdivision regulations.

This chapter shall not affect, in any manner, the permissible use of property, density/intensity of development, design and improvement standards and public improvement requirements or any other aspect of the development of land or construction of buildings, which may be imposed by the City pursuant to the City's zoning regulations, subdivision regulations or other ordinances or regulations of the City, which shall be operative and remain in full force and effect without limitation with respect to all residential and nonresidential development. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.15.160 Violation—Penalty.

A violation of this chapter shall be prosecuted in the same manner as misdemeanors are prose-

cuted; and upon conviction, the violator shall be punishable according to law. However, in addition to or in lieu of any criminal prosecution, the City shall have the power to sue in civil court to enforce the provisions of this chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.15.170 Severability.

If any section, phrase, sentence, or portion of this chapter is for any reason held invalid or unconstitutional by any court of competent jurisdiction, such portions shall be deemed a separate, distinct, and independent provision; and such holding shall not affect the validity of the remaining portions thereof. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

CHAPTER 18.16 FIRE FACILITIES IMPACT FEE

18.16.010 Legislative findings.

A. The State of California, through the enactment of Government Code Sections 66001 through 66009 has authorized the City to enact development impact fees.

B. The imposition of development impact fees is one of the preferred methods of ensuring that development bears a proportionate share of the cost of capital facilities and related costs necessary to accommodate such development. This must be done in order to promote and protect the public health, safety and welfare.

C. That the continuing increase in the development of residential and nonresidential construction in the City has created an urgency in that funds are needed for the increased demand for fire services and the facilities that support those services which are required to serve the increasing residential and workforce population of the City.

D. The fees established pursuant to this chapter are derived from, are based upon, and do not exceed the costs of providing additional fire services attributable to new residential or nonresidential construction, including: master planning to more specifically identify capital facilities to serve new development; the acquisition of additional property for fire facilities; the construction of buildings for fire services; the furnishing of buildings or facilities for fire services; and the purchasing of equipment, apparatus, and vehicles for fire services.

E. The fees collected pursuant to this chapter shall be used to finance the fire facilities, equipment, and apparatus identified in Subsection 18.16.010.D.

F. Detailed study of the impacts of future residential and nonresidential construction in the City, along with an analysis of the need for new fire facilities and equipment has been prepared. This study is included in the "Public Safety Impact Fee Study" for the City of Long Beach dated August 18, 2006, which is incorporated herein by reference as though set forth in full, word for word.

G. There is a reasonable relationship between the need for the fire facilities, apparatus and equipment set forth in Subsection 18.16.010.D and the impacts of the types of development for which the corresponding fee is charged.

H. There is a reasonable relationship between the fee's use and the type of development for which the fee is charged.

I. There is a reasonable relationship between the amount of the fee and the cost of the facilities, apparatus and equipment or portion thereof attributable to the development on which the fee is imposed. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.16.020 Purpose.

A Fire Facilities Impact Fee is imposed on residential and nonresidential development for the purpose of assuring that the impacts created by said development pay its fair share of the costs required to support needed fire facilities and related costs necessary to accommodate such development. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.16.030 Definitions.

For purposes of this chapter, the words and terms defined herein shall have the meanings stated, unless another meaning is plainly intended. To the extent that the words and terms utilized in this chapter are not defined herein, but are defined in Title 18 or the zoning regulations, such words and terms shall have the meanings stated therein.

"Accessory use" is as defined in Section 21.15.060.

"Applicant" means the property owner, or duly designated agent of the property owner, for which a request for building permit or construction approval for a mobile home pad is received by the City.

"Calculation" means the point in time at which the City calculates the Fire Facilities Impact Fee to be paid by the applicant. Calculation will generally occur at the time of issuance of the applicable building permit or construction approval for a mobile home pad but may occur earlier in the development approval process.

"City Manager" means the City Manager of the City of Long Beach or other municipal officials he or she may designate to carry out the administration of this chapter.

"Collect" or "collection" means the point in time at which the Fire Facilities Impact Fees are paid by the applicant. Collection will occur on the date of final inspection or the date a Certificate of Occupancy or Temporary Certificate of Occupancy, whichever occurs first, or in the case of a mobile home pad or pads, collection will occur at or on the date of construction approval is issued.

"Development" means residential and/or nonresidential development to an undeveloped, partially developed or redeveloped site and involving the issuance of a building permit for such construction, reconstruction or use. Development also includes the approval and construction of new mobile home pads in existing or new mobile home parks or sites.

"Dwelling unit" or "DU" is as defined in Section 21.15.910.

"Fee-setting resolution" means and refers to the City resolution specifying the Fire Facilities Impact Fee per dwelling unit or mobile home pad for residential development and per gross floor area for nonresidential development, by type and by location. The Fire Facilities Impact Fee set forth in the fee-setting resolution may be revised pursuant to Section 18.16.140 and applicable State law.

"Fire Department" means the Fire Department of the City of Long Beach.

"Gross floor area" means the construction of floor area (in square feet) of a nonresidential development measured from the exterior building lines of each floor with respect to enclosed spaces, excluding dwelling units and parking facilities. For purposes of this chapter, the term "enclosed spaces" specifically includes, but is not limited to, an area available to and customarily used by the general public and all areas of business establishments generally accessible to the public such as fenced or partially fenced in areas of garden centers attached to and serving the primary structure.

"Mixed use" is as defined in Section 21.15.1760.

"Mobile home" is as defined in Section 21.15.1770.

"Nonresidential development" means a development undertaken for the purpose of constructing gross floor area that includes, but is not limited to, commercial, industrial, retail, office, hotel/motel, and warehouse uses involving the issuance of a building permit for such construction.

"Parking facility" means a building or structure, or portion thereof, that provides parking spaces for vehicles; and which may include, but is not limited to, the ancillary facilities such as sidewalks, drainage area, lighting, landscaping, striping, exits and entrances, signage, waiting areas and other related areas or uses as determined by the Director.

"Principal use" is as defined in Section 21.15.2170.

"Residential development" means a development undertaken for the purpose of: (i) constructing a dwelling unit or units; or (ii) the alteration or change of use of an existing building or structure that results in new dwelling unit or units and involving the issuance of a building permit for

such construction, reconstruction or use, or the construction approval for a mobile home pad or pads.
(ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.16.040 Fund established.

A Fire Facilities Impact Fee fund is established. The Fire Facilities Impact Fee fund is a fund to be utilized for payment of the actual or estimated costs of fire facilities, apparatus and equipment related to residential and nonresidential developments as described in this chapter.
(ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.16.050 Fire Facilities Impact Fee.

There is imposed a Fire Facilities Impact Fee on all residential and nonresidential development as those terms are defined in this chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.16.060 Fee imposed.

A. Any person who, after the effective date of the ordinance codified in this chapter, seeks to engage in residential or nonresidential developments, including mobile home as defined in this chapter, by obtaining a building permit, or construction approval for a mobile home pad or pads, is required to pay a Fire Facilities Impact Fee in the manner and amount as set forth in the fee-setting resolution.

B. No Certificate of Occupancy, Temporary Certificate of Occupancy, final inspection approval or construction approval for a mobile home pad or pads, as applicable, for the activities listed in subsection A of this section shall be issued unless and until the Fire Facilities Impact Fee required by this chapter has been paid to the City. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.16.070 Calculation of Fire Facilities Impact Fee.

A. The Director shall calculate the amount of the applicable Fire Facilities Impact Fee due as a condition precedent to the issuance, and at any time prior to, the building permit or construction approval for a mobile home pad or pads based upon the applicable impact fee rate as specified in the fee-setting resolution.

B. The Director shall calculate the amount of the applicable Fire Facilities Impact Fee due by:

1. Determining the number and type of dwelling units in a residential development, or mobile home pads in a mobile home park or site and multiplying the same by the Fire Facilities Impact Fee amount as established by the fee-setting resolution per dwelling unit or pad.

2. Determining the gross floor area, type of use and location in a nonresidential development, and multiplying the same by the Fire Facilities Impact Fee amount as established by the fee-setting resolution per square feet.

3. Determining the number and type of dwelling units in the residential development portion and the gross floor area, type of use and location in the nonresidential development portion of a building or structure containing mixed uses and multiplying the same by the Fire Facilities Impact Fee amount as established by the fee-setting resolution for each use.

4. Determining the gross floor area, type of use and location in a building or structure containing mixed uses that include two (2) or more principal uses in the nonresidential development portion, and multiplying the same by the Fire Facilities Impact Fee amount as established by the fee-setting resolution for each use. The gross floor area of any accessory use will be charged at the same rate as the predominant principal use unless the Director finds that the accessory use is related to another principal use. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.16.080 Collection of Fire Facilities Impact Fee.

A. The City shall collect from the applicant the Fire Facilities Impact Fee prior to the issuance

of a Certificate of Occupancy, Temporary Certificate of Occupancy, final inspection or construction approval for mobile home pad or pads, whichever occurs first.

B. Except for an administrative charge that shall be allocated to the Department of Community Development, all funds collected shall be properly identified and promptly transferred for deposit in the Fire Facilities Impact Fee fund and used solely for the purposes specified in this chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.16.090 Use of funds.

A. Funds collected from the Fire Facilities Impact Fee shall be used to fund the costs of providing additional fire services attributable to new residential and nonresidential development including mobile home and shall include:

1. The acquisition of additional property for Fire Department facilities;

2. The construction of new buildings for Fire Department services;

3. The furnishing of new buildings or facilities for Fire Department services;

4. The purchasing of equipment, apparatus, and vehicles for Fire Department services;

5. The funding of a master plan to identify capital facilities to serve new Fire Department development; and

6. The cost of financing (e.g., interest payments) related to Subsections 1 through 5, inclusive.

B. Funds shall not be used for periodic or routine maintenance.

C. In the event that bonds or similar debt instruments are issued for advanced provision of capital facilities for which Fire Facilities Impact Fees may be expended, impact fees may be used to pay debt service on such bonds or similar debt instruments to the extent that the facilities provided are of the type described in Subsection 18.16.090.A.

D. Funds may be used to provide refunds as described in Section 18.16.100. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.16.100 Refund.

A. Any applicant who has paid a Fire Facilities Impact Fee pursuant to this chapter may apply for a full or partial refund of same, if, within one (1) year after collection of the Fire Facilities Impact Fee the development has been modified, pursuant to appropriate City ordinances and regulations, resulting in: (i) a reduction of the number of dwelling unit(s) in a residential development or portion of a residential development in a building or structure with mixed uses, (ii) a change in the type of dwelling units, (iii) a reduction of the gross floor area in a nonresidential development or portion of an nonresidential development in a building or structure with mixed uses, or (iv) the applicability of an exemption pursuant to Section 18.16.110. The City shall retain a sum equaling twenty percent (20%) of the impact fee paid by the applicant to offset the administrative costs of refund. The applicant must submit an application for such a refund in accordance with Chapter 3.48. In no event shall a refund exceed the amount of the Fire Facilities Impact Fee actually paid.

B. Any funds not expended, encumbered or obligated by issued indebtedness by the end of the calendar quarter immediately following five years from the date the Fire Facilities Impact Fee was paid shall, upon application of the current landowner, be returned to such landowner with interest at a rate equal to the rate of interest earned by the City from the time the fee was paid, provided that the landowner submits an application for a refund within one hundred eighty (180) calendar days from the expiration of the five-year period. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.16.110 Exemptions and credits.

A. Exemptions. Any claim of exemption must be made no later than the time of building permit issuance or mobile home construction approval.

The following uses and types of development specified in this section area exempted from the payment of the Fire Facilities Impact Fee.

1. Nonresidential development.

a. Construction of a nonresidential building or structure or an addition to an existing nonresidential building or structure of three thousand (3,000) square feet or less of gross floor area.

b. Parking facilities.

c. Hospitals as that term is defined in Section 21.15.1370.

2. Residential development. The exemption provided herein shall not apply to residential tract development, residential development of more than one (1) unit per lot, or to the replacement of a single-family dwelling with more than one (1) dwelling unit.

a. Construction, replacement or rebuilding of (i) a single-family dwelling (one unit per lot) on an existing lot of record.

b. Replacement of one (1) mobile home with another on the same pad.

c. Legalization of an illegal dwelling unit existing prior to January 1, 1964, for which an administrative use permit is approved in accordance with Subsection 21.25.403.D.

d. Moving and relocation of a single-family home from one (1) lot within the City to another lot within the City.

e. Property rented, leased, sold, conveyed or otherwise transferred, at a rental price or purchase price which does not exceed the "affordable housing cost" as defined in Section 50052.5 of the California Health and Safety Code when provided to a "lower income household" as defined in Section 50079.5 of the California Health and Safety Code or "very low-income household" as defined in Section 50105 of the California Health and Safety Code or "moderate income household" as defined in Section 50093 of the Health and Safety Code. This exemption shall require the applicant to execute an agreement to guarantee that the units shall be maintained for very low, lower or moderate -income households whether as units for rent or for sale or transfer, for the lesser of a period of fifty-five (55) years or the actual life or existence of the structure, including any addition, renovation or remodeling thereto. The agreement shall be in the form of a deed restriction or other legally binding and enforceable document acceptable to the City Attorney and shall bind the owner and any successor-in-interest to the real property being developed. The agreement shall subordinate, if required, to any State or federal program providing affordable housing to very low, lower or moderate-income households. The agreement shall be recorded with the Los Angeles County Recorder prior to the issuance of a Certificate of Occupancy. The City's Housing and Neighborhood Services Bureau shall be notified of pending transfers or purchases and give its approval of the purchaser's qualifying income status and purchase price, prior to the close of escrow. The City's Housing and Neighborhood Services Bureau shall be notified of pending rentals and give its approval of proposed tenant's qualifying income status and rental rate, prior to the tenant's occupancy. Applicant or any successor-in-interest shall be required to provide annually, or as requested, the names of all tenants or purchasers, current rents, and income certification to ensure compliance. Voluntary removal of the housing restriction or violation of the restriction shall be enforced by the City's Housing and Neighborhood Services Bureau and shall require the applicant or any successor-in-interest to pay the then applicable Fire Facilities Impact Fee at the time of voluntary conversion or as imposed at the time of violation on the unit in violation, plus any attorneys' fees and costs of enforcement, if applicable.

f. The installation of a replacement mobile home on a lot or other such site when a Fire Facilities Impact Fee for such mobile home site has previously been paid pursuant to this chapter, or where a mobile home legally existed on such site on or prior to the effective date of the ordinance codified in this chapter.

3. Other construction work. Where no additional dwelling unit or units and/or no gross floor area is added, the following construction work is exempt:

a. The alteration, remodeling, rehabilitation, or other improvements or modifications to existing buildings or structures.

b. The rebuilding of existing buildings or structures destroyed by fire, flood, earthquake or other acts of God.

c. The rehabilitation or replacement of existing buildings or structures in order to comply with City mandated seismic safety requirements.

d. The rehabilitation or replacement of existing buildings or structures destroyed by imminent public hazard, acts of terrorism, sabotage, vandalism, warfare or civil disturbance; provided however that such destruction was not caused or in any manner accomplished, instigated, motivated, prompted, incited, induced, influenced, or participated in by any persons or their agents having any interest in the real or personal property at the location.

B. Credits. Any applicant whose development is located within a Community Facilities District (CFD), and is subject to the assessments thereof, shall receive an offset credit towards the fees established by this chapter to the extent that the assessments fund improvements within the CFD which would otherwise be funded by the development impact fees established by this chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-21-0035 § 2, 2021; ORD-19-0031 § 1(Exh. A), 2019)

18.16.120 Appeals.

A. An applicant may appeal, by protest, any imposition of the Fire Facilities Impact Fee by filing a notice of appeal with the City Clerk within ninety (90) days after the applicant pays the required fee.

B. A valid appeal by protest of the imposition of the Fire Facilities Impact Fee shall meet all of the following requirements:

1. Tendering in advance of the appeal any required payment in full or providing assurance of payment satisfactory to the City Attorney;

2. Serving written notice on the City including:

a. A statement that the required payment has been tendered under protest or that required conditions have been satisfied;

b. A statement informing the City of the factual elements of the dispute and the legal theory forming the basis of the protest;

c. The name and address of the applicant;

d. The name and address of the property owner;

e. A description and location of the property;

f. The number of residential units or nonresidential gross floor area proposed, by land use or dwelling unit type, as appropriate; and

g. The date of issuance of the building permit.

C. The City Council shall schedule a hearing and render a final decision on the applicant's appeal within sixty (60) days after the date the applicant files a valid appeal.

D. The City Council hearing shall be administrative. Evidence shall be submitted by the City and by the applicant and testimony shall be taken under oath.

E. The burden of proof shall be on the applicant to establish that the applicant is not subject to the imposition of the Fire Facilities Impact Fee pursuant to the express terms of this chapter and applicable State law.

F. If the Fire Facilities Impact Fee has been paid in full or if the notice of appeal is accompanied by a cash deposit, letter of credit, bond or other surety acceptable to the City Attorney in an amount equal to the Fire Facilities Impact Fee calculated to be due, the application for the building permit or mobile home construction approval shall be processed. The filing of a notice of appeal shall not stay the imposition or the collection of the Fire Facilities Impact Fee calculated by the City to be due unless sufficient and acceptable surety has been provided.

G. Any petition for judicial review of the City Council's final decision shall be made in accordance with applicable State law and pursuant to Section 18.16.130. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.16.130 Judicial review.

A. Any judicial action or proceeding to attack, review, set aside, void or annul the ordinance

codified in this chapter, or any provision thereof, or resolution, or amendment thereto, shall be commenced within ninety (90) days of the effective date of the ordinance codified in this chapter, resolution, or any amendment thereto.

B. Any judicial action or proceeding to attack, review, set aside or annul the imposition or collection of a Fire Facilities Impact Fee on a development shall be preceded by a valid appeal by protest pursuant to Section 18.16.120 hereof and a final decision of the City Council pursuant thereto and shall be filed and service of process effected within ninety (90) days after the hearing on appeal regarding the imposition of a Fire Facilities Impact Fee upon the development. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.16.140 Annual report and amendment procedures.

A. Within one hundred eighty (180) days after the last day of each fiscal year, the Fire Chief shall evaluate progress in implementation of the Fire Facilities Impact Fee program and shall prepare a report thereon to the City Council in accordance with Government Code Section 66006 incorporating among other things:

1. The fire facilities, apparatus, and equipment commenced, purchased or completed utilizing monies from the Fire Facilities Impact Fee fund;

2. The amount of the fees collected and the interest earned;

3. The amount of Fire Facilities Impact Fees in the fund; and

4. Recommended changes to the Fire Facilities Impact Fee, including, but not necessarily limited to, changes in the Fire Facilities Impact Fee chapter or fee-setting resolution.

B. Based upon the report and such other factors as the City Council deems relevant and applicable, the City Council may amend the ordinance codified in this chapter or the fee-setting resolution implementing this chapter. Changes to the Fire Facilities Impact Fee rates or schedules may be made by amending the fee-setting resolution. Any change which increases the amount of the Fire Facilities Impact Fee shall be adopted by the City Council only after a noticed public hearing. Nothing herein precludes the City Council or limits its discretion to amend the ordinance codified in this chapter or the fee-setting resolution establishing Fire Facilities Impact Fee rates or schedules at such other times as may be deemed necessary. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.16.150 Effect of Fire Facilities Impact Fee on zoning and subdivision regulations.

This chapter shall not affect, in any manner, the permissible use of property, density/intensity of development, design and improvement standards and public improvement requirements or any other aspect of the development of land or construction of buildings, which may be imposed by the City pursuant to the City's zoning regulations, subdivision regulations or other ordinances or regulations of the City, which shall be operative and remain in full force and effect without limitation with respect to all residential and nonresidential development. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.16.160 Violation—Penalty.

A violation of this chapter shall be prosecuted in the same manner as misdemeanors are prosecuted; and upon conviction, the violator shall be punishable according to law. However, in addition to or in lieu of any criminal prosecution, the City shall have the power to sue in civil court to enforce the provisions of this chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.16.170 Severability.

If any section, phrase, sentence, or portion of this chapter is for any reason held invalid or unconstitutional by any court of competent jurisdic-

tion, such portions shall be deemed a separate, distinct, and independent provision; and such holding shall not affect the validity of the remaining portions thereof. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

CHAPTER 18.17
TRANSPORTATION IMPROVEMENT FEE

18.17.010 Short title.

This chapter shall be known and cited as the Long Beach Transportation Improvement Fee Ordinance or as the Transportation Fee Ordinance. The fees imposed pursuant to this chapter shall be known as "Transportation Improvement Fees." (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.17.020 Purpose.

A Transportation Improvement Fee is imposed on new development in the City for the purpose of assuring that the transportation level of service goals of the City as set forth in the traffic mitigation program are met with respect to the additional demands placed on the transportation system by traffic generated from such development. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.17.030 Affected area—Designation of subareas.

A. This chapter shall be applicable to all new development in the City including the planned development central business district (CBD) area of the City, except as otherwise provided herein.

B. In the CBD area of the City, Transportation Improvement Fees shall be imposed on all commercial development, including, but not limited to, office, retail, hotel and movie theaters, as set forth in the fee setting resolution adopted by the City Council pursuant to this chapter.

C. Citywide, Transportation Improvement Fees shall be imposed on all residential development and on all industrial development as set forth in the fee setting resolution adopted by the City Council pursuant to this chapter.

D. Citywide, but excluding the CBD area of the City, Transportation Improvement Fees shall be imposed on all commercial development including, but not limited to, office, retail, hotel and movie theaters, as set forth in the fee setting resolution adopted by the City Council pursuant to this chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.17.040 Definitions.

For purposes of this chapter, the words and terms defined herein shall have the meanings stated, unless another meaning is plainly intended. To the extent that the words and terms utilized in this chapter are not defined herein, but are defined in Title 18 or the zoning regulations, such words and terms shall have the meanings stated therein.

"Accessory use" is as defined in Section 21.15.060.

"Accessory use, residential" is as defined in Section 21.15.063. An accessory residential unit which exceeds two hundred twenty (220) square feet of residential dwelling space shall be classified as a single-family dwelling unit for purposes of application of the Transportation Improvement Fee.

"Applicant" means the owner of property, or owner's authorized agent for which a request for development approval is received by the City.

"Central Business District" or "CBD" area or planned development Central Business District area means the area of the City as delineated on Exhibit 1 and which is coterminous with the planned development CBD area as defined in the City's general plan land use element.

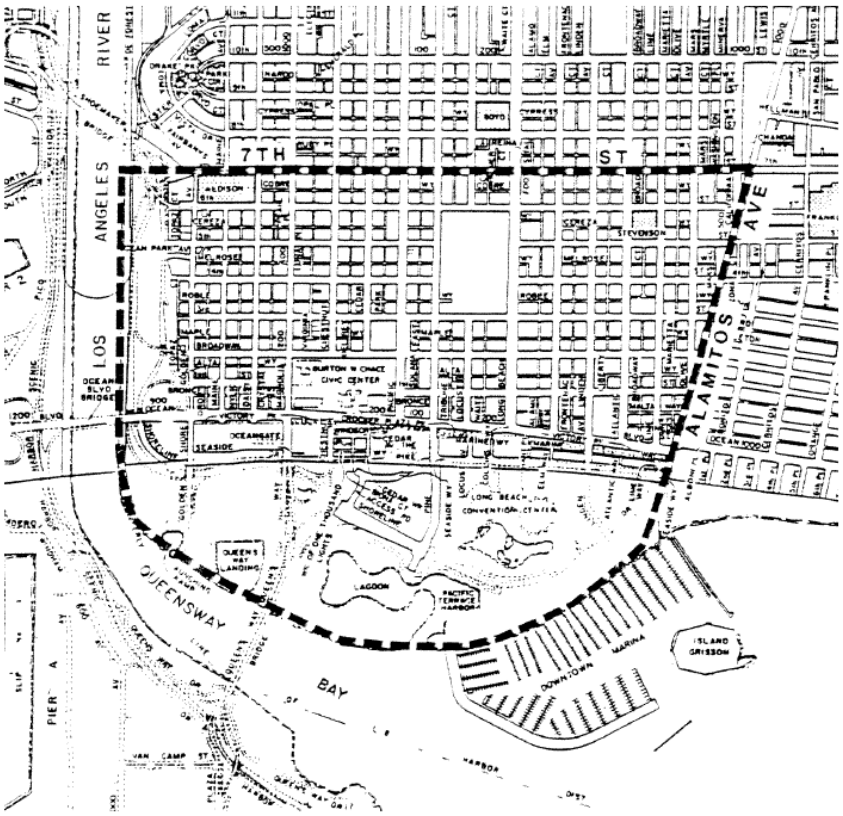


EXHIBIT 1
CENTRAL BUSINESS DISTRICT AREA

"Certificate of Occupancy" means the official City certification, issued pursuant to Chapter 18.08, that all or a portion of the building, structure or addition is approved for use or occupancy by a tenant, owner or occupant. For purposes of this chapter, Certificate of Occupancy and Temporary Certificate of Occupancy, whichever comes first, shall be considered synonymous.

"City-wide" means the entire area of the City including the CBD area.

"Collection" means the point in time at which the Transportation Improvement Fees are paid by the applicant. Collection will generally occur at and as a condition precedent to the issuance of the Certificate of Occupancy.

"Commitment" means the earmarking of Transportation Improvement Fees collected to fund or partially fund or to retire debt issued for the funding of transportation improvements serving residential and nonresidential development.

"Demand" means the portion of transportation capacity that development will consume measured in PM peak hour trips.

"Development" means residential and/or nonresidential developments to an undeveloped, partially developed or redeveloped site and involving the issuance of a building permit for such construction, reconstruction or use.

"Development approval" means tentative map approval, parcel map approval, or site plan approval if the imposition of the Transportation Improvement Fee could lawfully have been imposed at such time or, building permit issuance if the Transportation Improvement Fee could not be lawfully imposed at tentative map, parcel map or site plan approval.

"Dwelling unit" or "DU" is as defined in Section 21.15.910.

"Fee-setting resolution" means the City resolution specifying the Transportation Improve-

ment Fee per dwelling unit for residential development and per gross floor area for nonresidential development, by type and by location. The Transportation Improvement Fees set forth in the fee-setting resolution may be revised pursuant to Section 18.17.060 and applicable State law.

"Gross floor area" means the construction of new floor area (in square feet) of a nonresidential development enclosed by the exterior building walls of each story, the floor below and ceiling or roof above, excluding dwelling units and parking facilities.

"Highway Capacity Manual" means and refers to the report entitled Highway Capacity Manual, Special Report 209 (Transportation Research Board, 1985) or as thereafter amended.

"Imposition" means the determination that the Transportation Improvement Fee is applicable to the development and the attachment of the Transportation Improvement Fee as a specific condition of development approval.

"ITE Tip Generation Manual" means the informational report entitled "Trip Generation" by the Institute of Transportation Engineers, Fourth Edition, 1987, or as thereafter amended.

"Level of Service" or "LOS" means an indicator of the extent or degree of service provided by, or proposed to be provided by, a transportation improvement based upon the relationship of traffic volume to road capacity and related to the operational characteristics of the road as measured by standards set forth in the Highway Capacity Manual.

"Long Beach Transportation Study (1989)" means the study performed for the City by Barton-Aschman Associates, Inc., and including Volume I-Traffic, Volume II-Parking, Volume III-Transit, and the Report on the Allocation of Transportation Improvement Costs, which collectively form the basis for travel demand forecasts and transportation improvement plans and recommendations.

"Mixed use" is as defined in Section 21.15.1760.

"Nonresidential development" means a development undertaken for the purpose of constructing gross floor area that includes, but is not limited to, commercial, industrial, retail, office, hotel/motel, and warehouse uses involving the issuance of a building permit for such construction.

"Parking facility" means a building or structure, or portion thereof, that provides parking spaces for vehicles, and which may include, but is not limited to, the ancillary facilities such as sidewalks, drainage area, lighting, landscaping, striping, exits and entrances, signage, waiting areas and other related areas or uses as determined by the Director.

"PM peak hour" means a one-hour period of time between 4:00 p.m. and 6:00 p.m., when the development generates the maximum number of trips.

"PM peak hour trips" means the total number of trips generated by a development during the p.m. peak hour.

"Principal use" is as defined in Section 21.15.2170.

"Residential development" means a development undertaken for the purpose of: (i) constructing a dwelling unit or units; or (ii) the alteration or change of use of an existing building or structure that results in new dwelling unit or units and involving the issuance of a building permit for such construction, reconstruction or use.

"Road facility" means the construction of a road link or intersection which expands capacity to accommodate additional traffic, and which may include, but is not limited to, the installation of ancillary facilities such as sidewalks, curbs, gutters, traffic signals, traffic signs, lighting, landscaping, striping, medians, turn lanes and other project-related improvements.

"Secondary housing unit" is as defined and regulated in Sections 21.15.2400 and 21.51.275. A secondary housing unit which exceeds six hundred forty (640) square feet of residential dwelling space shall be classified as a standard dwelling unit for purposes of application of the Transportation Improvement Fee.

"Senior citizen housing" is as defined in Section 21.15.2430. The applicant shall be required to guarantee the units shall be maintained for senior citizen housing whether rented, leased, sold, con-

veyed or otherwise transferred, for the lesser of a period of thirty (30) years or the actual life or existence of the building or structure, including any addition, renovation or remodeling thereto. The guarantee shall be in the form of a deed restriction or other legally binding and enforceable document acceptable to the City. The document shall be recorded with the Los Angeles County Recorder prior to the issuance of a Certificate of Occupancy. The applicant shall comply with the maintenance of the units for senior citizen housing according to the procedures of the Housing and Neighborhood Services Bureau. The Housing and Neighborhood Services Bureau shall establish a process for monitoring any applicant for any successor-in-interest shall be required to provide annually, or as requested, proof of compliance.

"Traffic mitigation program of Long Beach" or "traffic mitigation program" means and refers to the City's long range strategic and financing plan for transportation improvements as adopted by resolution of the City Council.

"Transit facility" means the purchase of buses and/or the construction of an improvement ancillary to the operation of the Long Beach bus system and, which may include but is not limited to, the installation of facilities such as bus shelters, bus turn lanes, lighting, landscaping, signage, and other project-related improvements.

"Transportation demand management measures" means a program designed to reduce p.m. peak hour existing work trips from a proposed development site by a minimum of twenty percent (20%).

"Transportation improvement" means and refers to a project identified in the transportation improvement plan and involving the construction of a road facility or portion thereof, the construction of parking facilities, the construction of transit improvements, including the purchase of buses, the construction of other project-related improvements, including, but not limited to, right-of-way and land acquisition, utility relocation, project planning, administrative, legal, engineering, and design services and project contingencies.

"Transportation Improvement Fee" means a monetary exaction imposed as a condition of development approval in order to assure the provision of transportation improvements needed to serve development within a reasonable period of time at City level of service goals as set forth in the traffic mitigation program.

"Transportation improvement plan" means the identification, listing, cost and prioritization of transportation improvements necessary to meet travel demand forecasts as determined by the Director of Public Works while maintaining the City's level of service for transportation, as set forth in the traffic mitigation program.

"Transportation services" means nonphysical, programmatic efforts to reduce traffic including, but not limited to, transportation demand management. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.17.050 Transportation Improvement Fee requirements—Imposition—Collection.

A. All development shall be required to pay a Transportation Improvement Fee at the time of issuance of a Certificate of Occupancy, except as otherwise provided in Subsection 18.17.050.F or Section 18.17.130. The City may, prior to the issuance of a building permit for a development subject to the Transportation Improvement Fee, require that the applicant, or lessee if the lessee's interest appears of record, as a condition of issuance of the building permit, execute a contract with the City to pay the applicable Transportation Improvement Fee at the time of issuance of the Certificate of Occupancy.

B. Transportation Improvement Fees shall be imposed at the time of tentative map approval, parcel map approval, site plan approval, or building permit issuance.

C. Transportation Improvement Fees shall be collected no later than at the time of issuance of a Certificate of Occupancy, except as otherwise provided in Subsection 18.17.050.F.

D. Whenever a development contains more than one (1) building, the Transportation Improvement Fee shall be paid in a lump sum for all dwelling units or gross floor area in each building of the development for which a Certificate of Occupancy is sought.

E. Imposition of the Transportation Improvement Fee requirement due shall be a condition of development approval, and no tentative map, parcel map or site plan shall be approved, nor shall a building permit be issued without compliance with the provisions of this chapter.

F. For nonresidential developments exceeding one hundred thousand (100,000) square feet of gross floor area, the applicant shall pay the Transportation Improvement Fee either: (1) in full at issuance of the Certificate of Occupancy or (2) in four installments as set forth herein.

The first payment shall equal twenty-five percent (25%) of the total Transportation Improvement Fee owed and shall be payable at the time of the issuance of the Certificate of Occupancy. The balance of the Transportation Improvement Fee shall accrue interest at a rate equal to that earned on the City's pooled investment funds (which rate shall be published annually by the City Treasurer), and shall be paid in three (3) annual installments, commencing upon the first anniversary of the issuance of the Certificate of Occupancy for the development. The balance of the Transportation Improvement Fee may be prepaid by the applicant at any time. In the event that the applicant (or applicant's successor-in-interest) fails to pay any installment when due, the Certificate of Occupancy issued for the development may be revoked at the option of the City.

Payments pursuant to the installment option and the rights and obligations of the applicant and the City shall be set forth in a contract which shall be executed at and as a condition precedent to issuance of a Certificate of Occupancy. Applicant shall post a bond, certificate of deposit, letter of credit or other instrument acceptable to the City Attorney in an amount equal to the Transportation Improvement Fee calculated to be due and payable by installment at the time of execution of the contract. The City Council authorizes the City Manager to execute such contracts on behalf of the City. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.17.055 Transportation Demand Management Measure Requirements.

Transportation demand management measure requirements, where applicable, in addition to Transportation Improvement Fees shall be implemented in conjunction with Chapter 21.64. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.17.060 Amount of Transportation Improvement Fee.

The Transportation Improvement Fee per p.m. peak hour trip by land use type and, where relevant, by location shall be established by fee-setting resolution of the City Council and may be amended from time to time as set forth in Section 18.17.170. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.17.070 Calculation of Transportation Improvement Fee.

A. The Director shall calculate the amount of the applicable Transportation Improvement Fee due as a condition precedent to the issuance of, and at any time prior to, the building permit based upon the applicable impact fee rate as specified in the fee-setting resolution.

B. The Director shall calculate the amount of the applicable Transportation Improvement Fee due by:

1. Determining the number and type of dwelling units in a residential development and multiplying the same by the Transportation Improvement Fee amount per dwelling unit as established by the fee-setting resolution.

2. Determining the gross floor area, type of use and location in a nonresidential development, and multiplying the same by the Transportation Improvement Fee amount per square feet as established by the fee-setting resolution.

3. Determining the number and type of dwelling units in the residential development portion and the gross floor area, type of use and location in the nonresidential development portion of a building or structure containing mixed uses, and multiplying the same by the Transportation Improvement Fee amount as established by the fee-setting resolution for each use.

4. Determining the gross floor area, type of use and location in a building or structure containing mixed uses that include two (2) or more principal uses in the nonresidential development, and multiplying the same by the Transportation Improvement Fee amount as established by the fee-setting resolution for each use. The gross floor area of any accessory use will be charged at the same rate as the predominant principal use unless the Director finds that the accessory use is related to another principal use.

C. The Director shall be responsible for determining the use type of the proposed development. If the Director determines that the proposed development is not in one of the use classifications included in the fee-setting resolution or, if the applicant submits relevant information and documentation acceptable to the Director demonstrating that the proposed development is not in one of the use classifications included in the fee-setting resolution or is a mixed use, the Director of Public Works shall:

1. Determine whether the proposed development has trip generation characteristics similar to a listed use classification;

2. If so, that use classification shall be used in calculating the appropriate Transportation Improvement Fee;

3. If not, identify the trip generation characteristics of the proposed development and, utilizing the ITE trip generation manual, assign the proposed use to the most similar land use type listed in the manual;

4. If there are no similar land use types listed in the ITE trip generation manual, the applicant may be requested to perform, at his or her own expense, a trip generation study or may utilize other statistically valid trip generation data applicable to the proposed use. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.17.080 Collection of Transportation Improvement Fee.

The Director shall be responsible for the collection of the Transportation Improvement Fee prior to the issuance of a Certificate of Occupancy unless:

A. The applicant is entitled to a full credit pursuant to Section 18.17.110; or

B. The applicant is exempt pursuant to Section 18.17.130; or

C. The applicant has taken an appeal pursuant to Section 18.17.150 and a cash deposit, letter of credit, bond or other surety in the amount of the Transportation Improvement Fee, as calculated by the Director, has been posted with the City;

D. The applicant satisfies the conditions for Transportation Improvement Fee payment by installments pursuant to Subsection 18.17.050.F. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.17.090 Establishment of Transportation Improvement Fee account.

The City establishes a segregated Transportation Improvement Fee subfund (hereinafter "subfund") to which all Transportation Improvement Fees collected by the Director shall be deposited. The funds of the subfund shall not be commingled with any other funds or revenues of the City except for purposes of investment; but, provided that all such funds shall be separately accounted for. The subfund shall be interest-bearing and all interest received shall be credited to such subfund and used solely for purposes of the

subfund. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.17.100 Limitation on use of funds derived from Transportation Improvement Fees.

A. Funds derived from payment of Transportation Improvement Fees pursuant to this chapter shall be placed in the subfund and shall be used solely and exclusively for the purpose of funding transportation improvements, as defined herein, and as identified in the transportation improvement plan or to reimburse the City for expenditures, advances or indebtedness incurred for the construction of transportation improvements.

B. Transportation Improvement Fees shall not be used for the provision of roadway, parking or transit improvements relating to: (i) the needs of existing City residents, (ii) the enhancement of transportation improvements to provide a higher level of service to existing development, (iii) operation and maintenance costs associated with roadway, parking or transit improvements, (iv) repair and/or replacement of existing roadway, parking and transit improvements or (v) the provision of transportation services, as contrasted with transportation improvements.

C. The City shall commit or expend Transportation Improvement Fees deposited to the subfund within five (5) years from the date of deposit. The City shall make findings once each fiscal year with respect to any Transportation Improvement Fees remaining unexpended or uncommitted in the subfund five (5) or more years after the deposit of the fee to identify the purpose to which the fee is to be put and to demonstrate a reasonable relationship between the fee and the purpose for which it was charged. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.17.110 Credits.

A. Any applicant subject to a Transportation Improvement Fee pursuant to this chapter who constructs, escrows money with the City for the construction of, participates in an assessment district for the construction of or who otherwise contributes funds or improvements to the City for transportation improvements, as herein defined, shall be eligible for a credit for such contribution against the Transportation Improvement Fee otherwise due.

B. Credit applications shall be made on forms provided by the City and, whenever possible, shall be submitted at or before the time of building permit issuance. The application shall contain a declaration of those facts, under oath, along with relevant documentary evidence which qualifies the applicant for the credit.

C. The Director of Public Works shall determine whether the proposed construction, escrow payment, assessment district or cash contribution is for a transportation improvement listed in the transportation improvements plan or for a comparable transportation improvement, and is consistent with the project priorities and timing and, if necessary, shall determine the value of the developer contribution.

D. The Director of Public Works shall forward his or her report and the credit application and supporting documentary evidence to the City Council, for a determination of Transportation Improvement Fee credit. If the City Council determines that a Transportation Improvement Fee credit is due, said decision shall be confirmed by ordinance and shall be incorporated in a contract between the applicant and the City except as otherwise provided herein.

E. No credit shall be granted in an amount exceeding the otherwise applicable Transportation Improvement Fee.

F. Credits shall be on a building-by-building basis as development approval is sought and not on a development site basis. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.17.120 Refunds.

A. Any applicant who has paid a Transportation Improvement Fee pursuant to this chapter

may apply for a full or partial refund of same, within one (1) year after collection of the Transportation Improvement Fee for any of the following conditions:

1. A development has been modified, pursuant to appropriate City ordinances and regulations, resulting in a reduction of: (i) the number of dwelling unit(s) in a residential development or portion of a residential development in a building or structure with mixed uses; and/or (ii) the gross floor area in a nonresidential development or portion of a nonresidential development in a building or structure with mixed uses.

2. A development has changed in the type of use that results in a reduction of trips generated by that use.

B. Refund applications shall be made on forms provided by the City and shall contain a declaration of those facts, under oath, along with relevant documentary evidence which qualifies the applicant for the refund. In no event may a refund exceed the amount of the Transportation Improvement Fee paid by the applicant.

C. Except as described in Subsection 18.17.120.E, upon application by the property owner the City shall refund the portions of the Transportation Improvement Fee which have been on deposit over five (5) years and which are unexpended or uncommitted. Refunds shall be made to the current record owner or owners of lots or units of the development on a prorated basis, together with accrued interest.

D. Once each fiscal year the City shall make findings identifying all unexpended or uncommitted Transportation Improvement Fees in the subfund.

E. With respect to Transportation Improvement Fees unexpended or uncommitted five (5) years after deposit in the subfund, the City may make findings to identify the purpose to which the Transportation Improvement Fee is to be put and to demonstrate a reasonable relationship between the Transportation Improvement Fee and the purpose for which it was charged. If the City makes such findings, the Transportation Improvement Fees are exempt from the refund requirement. The findings need only be made with respect to funds in the possession of the City and need not be made with respect to letters of credit, bonds or other instruments taken to secure payment of Transportation Improvement Fees at a future date.

F. The City shall refund the unexpended or uncommitted portion of Transportation Improvement Fees by direct payment, by providing a temporary suspension of Transportation Improvement Fees for subsequent development projects of developers entitled to the refund, or by any other means consistent with the intent of this section. The determination by the City Council of the means by which revenues are to be refunded is a legislative act.

G. If the City finds that the administrative costs of refunding the unexpended or uncommitted Transportation Improvement Fees exceed the amount to be refunded, the City, after a public hearing, notice of which has been published in accordance with State law and posted in three (3) prominent places within the area of each development subject to a refund, may determine that the funds shall be allocated for other transportation improvements of the type for which the Transportation Improvement Fees were collected and which serve the development. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.17.130 Exemptions.

The following uses and types of development specified in this section are exempt from the payment of Transportation Improvement Fees:

A. Nonresidential development.

1. Construction of new nonresidential buildings or structures or addition to existing nonresidential buildings or structures of three thousand (3,000) square feet or less of gross floor area.

2. Nonresidential uses that generates ten (10) or fewer PM peak hour trips pursuant to the ITE Trip Generation Manual.

3. Parking facilities.

B. Residential development. The exemption provided herein shall not apply to residential tract

development, residential development of more than one (1) unit per lot, or to the replacement of a single-family dwelling with more than one (1) dwelling unit.

1. The construction, replacement or rebuilding of a single-family dwelling (one unit per lot) on an existing lot of record.

2. The moving and relocation of an existing single-family dwelling from one (1) lot within the City to another lot within the City.

3. The legalization of an illegal dwelling unit existing prior to January 1, 1964, for which an administrative use permit is approved in accordance with Subsection 21.25.403.D.

4. The replacement of a mobile home with another mobile home on the same pad or foundation.

5. Property rented, leased, sold, conveyed or otherwise transferred, at a rental price or purchase price which does not exceed the "affordable housing cost" as defined in Section 50052.5 of the California Health and Safety Code when provided to a "lower income household" as defined in Section 50079.5 of the California Health and Safety Code or "very low income household" as defined in Section 50105 of the California Health and Safety Code or "moderate income household" as defined in Section 50093 of the Health and Safety Code. This exemption shall require the applicant to execute an agreement to guarantee the units shall be maintained for very low, lower or moderate -income households whether as units for rent or for sale or transfer, for the lesser of a period of fifty-five (55) years or the actual life or existence of the structure, including any addition, renovation or remodeling thereto. The agreement shall be in the form of a deed restriction, second trust deed, or other legally binding and enforceable document acceptable to the City Attorney and shall bind the owner and any successor-in-interest to the real property being developed. The agreement shall subordinate, if required, to any State or Federal program providing affordable housing to very low, lower or moderate-income households. The agreement shall be recorded with the Los Angeles County Recorder prior to the issuance of a building permit. The Housing and Neighborhood Services Bureau shall be notified of pending transfers or purchases and give its approval of the purchaser's qualifying income status and purchase price, prior to the close of escrow. The Housing and Neighborhood Services Bureau shall be notified of pending rentals and give its approval of proposed tenant's qualifying income status and rental rate, prior to the tenant's occupancy. Applicant or any successor-in-interest shall be required to provide annually, or as requested, the names of all tenants or purchasers, current rents, and income certification to ensure compliance. Voluntary removal of the housing restriction or violation of the restriction shall be enforced by the Director and shall require the applicant or any successor-in-interest to pay the then applicable Transportation Improvement Fee at the time of voluntary conversion or as imposed at the time of violation on the unit in violation, plus any attorneys' fees and costs of enforcement if applicable.

C. Other construction work. Where no additional dwelling unit or units and/or no gross floor area is added, the following construction work is exempt:

1. The alteration, remodeling, rehabilitation, or other improvements or modifications to existing buildings or structures;

2. The rebuilding of existing buildings or structures destroyed by an act of God;

3. The rehabilitation or replacement of existing buildings or structures in order to comply with City mandated seismic safety requirement; or

4. The rehabilitation or replacement of existing buildings or structures destroyed by imminent public hazard, acts of terrorism, sabotage, vandalism, warfare or civil disturbance; provided however that such destruction was not caused or in any manner accomplished, instigated, motivated, prompted, incited, induced, influenced, or participated in by any persons or their agents having any interest in the real or personal property at the location. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-21-0035 § 3, 2021; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.17.140 Accounting and audits.

A. For each subfund established pursuant to Section 18.17.090, the City shall, within sixty (60) days of the close of each fiscal year, make available to the public the beginning and ending balance for the fiscal year, and the Transportation Improvement Fees, interest and other income and the amount of expenditures by public facility and the amount of refunds made during the fiscal year. The City Council shall review this information at the next regularly scheduled public meeting not less than fifteen (15) days after the availability of the information required hereby.

B. Any applicant may request an audit of the Transportation Improvement Fee in order to determine whether the fee exceeds the amount reasonably necessary to provide the transportation improvements to serve development at the level of service set forth in the traffic mitigation program. Upon such request for an audit, the City Council may request the City auditor to conduct an audit to determine whether the Transportation Improvement Fee is reasonable. Any costs incurred by the City in having an audit conducted may be recovered from the applicant who requests the audit. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.17.150 Appeals.

A. An applicant may appeal, by protest, any imposition of the Transportation Improvement Fee by filing a notice of appeal with the City Clerk at any time prior to, but in no case later than ninety (90) days after, the applicant pays the required fee.

B. A valid appeal by protest of the imposition of the Transportation Improvement Fee shall meet both of the following requirements:

1. Tendering in advance of the appeal any required payment in full or providing assurance of payment satisfactory to the City Attorney;

2. Serving written notice on the City including:

a. A statement that the required payment has been tendered under protest or that required conditions have been satisfied,

b. A statement informing the City of the factual elements of the dispute and the legal theory forming the basis of the protest,

c. The name and address of the applicant,

d. The name and address of the property owner,

e. A description and location of the property,

f. The number of residential units or nonresidential gross floor area proposed, by land use or dwelling unit type, as appropriate, and

g. The date of imposition of the Transportation Improvement Fee upon the development.

C. The City Council shall schedule a hearing and render a final decision on the applicant's appeal within one hundred sixty (160) days after the date the applicant files a valid appeal.

D. The City Council hearing shall be administrative. Evidence shall be submitted by the City and by the applicant and testimony shall be taken under oath.

E. The burden of proof shall be on the applicant to establish that the applicant is not subject to imposition of the Transportation Improvement Fee pursuant to the express terms of this chapter and applicable State law.

F. If the Transportation Improvement Fee has been paid in full or if the notice of appeal is accompanied by a cash deposit, letter of credit, bond or other surety acceptable to the City Attorney in an amount equal to the Transportation Improvement Fee calculated to be due, the application for development approval shall be processed. The filing of a notice of appeal shall not stay the imposition or the collection of the Transportation Improvement Fee calculated by the City to be due unless sufficient and acceptable surety has been provided.

G. If as a result of an appeal pursuant to this section or judicial review pursuant to Section 18.17.160, a Transportation Improvement Fee is reduced or waived, the City Council may determine whether and how such reduction or waiver may impact the Transportation Improvement Fee calculation methodology. If the City Council determines that transportation improvement needs are correspondingly reduced, the City Council may

amend the Transportation Improvement Fee calculation methodology, the applicable Transportation Improvement Fee, or take such other action as it may deem appropriate. If the City Council determines that transportation improvement needs remain the same, the City Council shall appropriate funds in an amount equal to the reduction or waiver of Transportation Improvement Fees and shall deposit same to the subfund or take such other action as it may deem appropriate.

H. Any petition for judicial review of the City Council's final decision shall be made in accordance with applicable State law and pursuant to Section 18.17.160. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.17.160 Judicial review.

A. Any judicial action or proceeding to attack, review, set aside, void or annul the ordinance codified in this chapter, or any provision thereof, or resolution, or amendment thereto, shall be commenced within one hundred twenty (120) days of the effective date of the ordinance codified in this chapter, resolution, or any amendment thereto.

B. Any judicial action or proceeding to attack, review, set aside or annul the imposition or collection of a Transportation Improvement Fee on a development shall be preceded by a valid appeal by protest pursuant to Section 18.17.150 hereof and a final decision of the City Council pursuant thereto and shall be filed and service of process effected within one hundred eighty (180) days after the hearing of appeal regarding imposition of the Transportation Improvement Fee upon the development. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.17.170 Annual report and amendment procedures.

A. At least once each year the Director of Public Works shall evaluate progress in implementation of the transportation improvement plan and the Transportation Improvement Fee and shall prepare a report thereon to the City Council incorporating:

1. The total amount of development granted development approval in the City by type;

2. The estimated increase in PM peak hour trips generated by approved development;

3. The transportation improvements completed relative to the improvements listed in the transportation improvement plan;

4. The amount of Transportation Improvement Fees in the subfund; and

5. Recommended changes to the Transportation Improvement Fee, including, but not necessarily limited to, changes in the transportation improvement plan and changes in the Transportation Improvement Fees chapter or fee-setting resolution.

B. Based upon the report and such other factors as the City Council deems relevant and applicable, the City Council may amend the ordinance codified in this chapter or the fee-setting resolution implementing this chapter. Changes to Transportation Improvement Fee rates or schedules may be made by amending the fee-setting resolution. Any change which increases the amount of the Transportation Improvement Fee shall be adopted by the City Council only after a noticed public hearing. Nothing herein precludes the City Council or limits its discretion to amend the ordinance codified in this chapter, the Long Beach Transportation Study (1989), the traffic mitigation program, the transportation improvement plan, or the fee-setting resolution establishing Transportation Improvement Fee rates or schedules at such other times as may be deemed necessary. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.17.180 Effect of Transportation Improvement Fee on zoning and subdivision regulations.

This chapter shall not affect, in any manner, the permissible use of property, density/intensity

of development, design and improvement standards and public improvement requirements or any other aspect of the development of land or construction of buildings, which may be imposed by the City pursuant to the zoning regulations, subdivision regulations or other ordinances or regulations of the City, which shall be operative and remain in full force and effect without limitation with respect to all residential and nonresidential development. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.17.190 Transportation Improvement Fee as additional and supplemental requirement.

The Transportation Improvement Fee imposed by this chapter is a fee imposed on residential and nonresidential development reflecting its proportionate share of the cost of providing transportation improvements necessary to meet the demand created by such development at City level of service goals as set forth in the traffic mitigation program. As such, the Transportation Improvement Fee is additional and supplemental to, and not in substitution of, either on-site transportation improvement requirements or off-site transportation improvement requirements necessary to provide access to the development, which may be imposed by the City pursuant to zoning, subdivision and other City ordinances and regulations. In no event shall an applicant for development approval be obligated to pay a Transportation Improvement Fee in excess of that calculated pursuant to this chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.18 PARK AND RECREATION FACILITIES FEE

18.18.010 Short title.

This chapter shall be known and cited as the "Long Beach Park and Recreation Facilities Impact Fee Ordinance." The fees imposed pursuant to this chapter shall be known as "Park Fees." (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.18.020 Purpose.

A Park Fee is hereby imposed on new residential development for the purpose of assuring that the park land and recreational facility standards established by the City are met with respect to the additional needs created by such development. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.18.030 Definitions.

For purposes of this chapter, the words and terms defined herein shall have the meanings stated, unless another meaning is plainly intended. To the extent that the words and terms utilized in this chapter are not defined herein, but are defined in Title 18 or the zoning regulations, such words and terms shall have the meanings stated therein.

"Accessory use, residential" is a dwelling unit as identified in Section 21.15.063. An accessory residential unit which exceeds two hundred twenty (220) square feet of residential dwelling space shall be classified as a single-family, duplex or multifamily dwelling unit for purposes of application of the Park Fee.

"Applicant" means the property owner, or duly designated agent of the property owner, of land on which a request for development approval is received by the City.

"Certificate of Occupancy" means the official City certification, issued pursuant to Chapter 18.08, that all or a portion of the building, structure or addition is approved for use or occupancy by a tenant, owner or occupant. For purposes of this chapter, Certificate of Occupancy and Temporary Certificate of Occupancy, whichever comes first, shall be considered synonymous.

"Collection" means the point at which the Park Fee due is collected from the applicant. Collection

will generally occur at and as a condition precedent to the issuance of the Certificate of Occupancy.

"Commitment" means the earmarking of Park Fees collected to fund or partially fund or to retire debt issued for the funding of park land acquisition or recreation improvements serving residential development.

"Development approval" means tentative map or parcel map approval if the imposition of the Park Fee could lawfully have been imposed at such time or, building permit issuance if Park Fees could not be lawfully imposed at tentative map or parcel map approval.

"Dwelling unit" or "DU" is as defined in Section 21.15.910.

"Duplex" means a building containing two dwelling units.

"Imposition" means the determination that the Park Fee is applicable to the residential development project and the attachment of the Park Fee requirement as a specific condition of development approval.

"Mobile home" is as defined in Section 21.15.1770.

"Multifamily" means a permanent building designed for or occupied by three (3) or more families living independently of each other. This includes apartment houses and condominiums, but does not include hotels, motels, communal housing, residential care facilities or convalescent hospitals.

"Park Fee" means a monetary exaction imposed as a condition of development approval in connection with a residential development project in order to fund and to assure the provision of park land and recreation improvements needed to serve such development at established City service level standards within a reasonable period of time.

"Park land" means land used or to be used or acquired or to be acquired for use as a City park or open space or property owned by another public entity, such as a public school site, which is improved by the City and designated to meet City park land and recreation improvement needs related to projected residential development.

"Recreation improvement" means the construction of facilities, including, but not limited to, soccer fields, softball fields, lighting, landscaping, bicycle paths, tennis courts, indoor recreational space and related facilities, the expenditure of funds for such facilities and improvements incidental thereto, and the expenditure of funds for the planning, design and engineering of such facilities and improvements and utility relocation ancillary thereto and designed to meet City park land and recreation improvement needs related to projected residential development.

"Residential development" means any development undertaken for the purpose of: (i) constructing a dwelling unit or units; or (ii) the alteration or change of use of an existing building or structure that results in new dwelling unit or units and involving the issuance of a building permit for such construction, reconstruction or use.

"Secondary housing unit" is as defined and regulated in Sections 21.15.2400 and 21.51.275. A secondary housing unit which exceeds six hundred forty (640) square feet of residential dwelling space shall be classified as a single-family, duplex or multifamily dwelling unit for purposes of application of the Park Fee.

"Single-family dwelling" means a residential unit designed and intended for occupancy by one (1) family as defined in Section 21.15.2410. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.18.040 Requirement.

A. All residential development shall be required to pay a Park Fee prior to the issuance of a Certificate of Occupancy. The City may, prior to the issuance of a building permit for a residential development subject to the Park Fee, require that the applicant, as a condition of issuance of the building permit execute a contract with the City to pay the applicable Park Fee prior to issuance of the Certificate of Occupancy.

B. Park Fees shall be imposed, where possible, at the time of tentative map approval, parcel map approval or site plan approval of a residential development.

C. Park Fees shall be collected prior to the issuance of a Certificate of Occupancy for a residential development.

D. Whenever a residential development contains more than one (1) dwelling unit, the Park Fee shall be paid in a lump sum for all dwelling units in each phase of a residential development for which a Certificate of Occupancy is sought.

E. Payment of the Park Fee due shall be a condition of development approval of all residential developments, and no tentative map or parcel map or site plan shall be approved nor shall a building permit be issued without compliance with the provisions of this chapter.

F. The Park Fee requirement shall not apply to applicants who have a valid building permit on the effective date of the ordinance codified in this chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.18.050 Amount of Park Fee.

A. The Park Fee per dwelling unit, by type, shall be established by resolution of the City Council and may be amended from time to time as set forth in Section 18.18.160.

B. The fees established by this chapter shall be revised annually by means of an automatic adjustment based on the average percentage change over the previous calendar year in the Construction Cost Index for the Los Angeles metropolitan area. The fees, as adjusted annually, shall be compiled by the Department of Parks, Recreation and Marine, and shall be included in an annual report to the City Council pertaining to the Park Fee. The annual report shall be presented to the City Council by August 1st of each year, and fee adjustments shall be effective on October 1st of each year. The continued validity of the fee calculation methodology and the automatic adjustment shall be evaluated by a Nexus Study which shall be presented to the City Council for its consideration and action every five (5) years. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.18.060 Calculation of applicable Park Fee.

The Director shall calculate the amount of the applicable Park Fee due as a condition precedent to the issuance of, and at any time prior to, the building permit by determining the number and type of dwelling units in the proposed residential development and multiplying same by the Park Fee amount per dwelling unit, by type, as established by City Council resolution. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.18.070 Collection of Park Fee.

The Director shall be responsible for the collection of the Park Fee and as a condition precedent to the issuance of a Certificate of Occupancy unless:

A. The applicant is entitled to a full credit pursuant to Section 18.18.100;

B. The applicant is exempt pursuant to Section 18.18.120; or

C. The applicant has taken an appeal pursuant to Section 18.18.140 and a bond or other surety in the amount of the fee, as calculated by the Director, has been posted with the City. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.18.080 Establishment of Park Fee account.

The City hereby establishes a segregated Park Fee trust fund account (hereinafter "account") to which all Park Fees collected by the Director shall be posted. The funds of the account shall not be commingled with any other funds or revenues of the City and all such funds shall be accounted for. The account shall be an interest bearing account and all interest received shall be credited to such account and used solely for purposes of the account. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.18.090 Limitation on use of funds derived from Park Fees.

A. Funds derived from payment of Park Fees pursuant to this chapter shall be placed in the account and shall be used solely and exclusively for the purpose of funding park land acquisition and recreation improvements, as defined herein, and as identified in the Park Fee report, or to reimburse the City for expenditures, advances or indebtedness incurred for the acquisition of park land or construction of recreation improvements, as defined herein or identified in the Park Fee report. Park Fees shall not be used for the provision of park land or recreation improvements, as defined herein, and as identified in the Park Fee report, or to reimburse the City for expenditures, advances or indebtedness incurred for the acquisition of park land or construction of recreation improvements, as defined herein or identified in the Park Fee report. Park Fees shall not be used for the provision of park land or recreation improvements relating to: (i) the needs of existing City residents, (ii) the enhancement of park and recreation facilities to provide a higher level of service to existing City residents, (iii) operation and maintenance costs associated with City park and recreation facilities, (iv) repair and/or replacement of existing park and recreational facilities, or (v) the provisions of recreational services and programming.

B. The City shall commit or expend Park Fees deposited to the account within five (5) years from the date of deposit. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.18.100 Credits.

A. Any applicant subject to a Park Fee pursuant to this chapter who constructs, escrows money with the City for the construction of, agrees to participate in an assessment district for the construction of or who otherwise contributes funds or improvements to the City for the acquisition of park land or the construction of recreation improvements as herein defined, may be eligible for a credit for such contribution against the Park Fee otherwise due.

B. Credit applications shall be made on forms provided by the City and, whenever possible, shall be submitted at or before the time of building permit issuance. The application shall contain a declaration of those facts, under oath, along with relevant documentary evidence which qualifies the applicant for the credit.

C. The Director of Parks, Recreation and Marine shall determine whether the proposed construction, escrow payment, assessment district or cash contribution is for a recreation improvement listed in the Park Fee report and is consistent with the project priorities and timing and, if necessary, shall determine the value of the developer contribution.

D. The Director of Parks, Recreation and Marine shall forward his or her report and the credit application and supporting documentary evidence to the City Council, for a determination of Park Fee credit. If the City Council determines that a Park Fee credit is due, said decision shall be confirmed by ordinance and shall be incorporated in a contract between the applicant and the City.

E. No credit shall be granted in an amount exceeding the otherwise applicable Park Fee. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.18.110 Refunds.

A. Any applicant who has paid a Park Fee pursuant to this chapter may apply for a full or partial refund of same, if, within one (1) year after collection of the Park Fee the residential development has been modified, pursuant to appropriate City ordinances and regulations, resulting in a reduction in the number of dwelling units, a change in the type of dwelling units or the applicability of an exemption pursuant to Section 18.18.120. Refund applications shall be made on forms provided by the City and shall contain a declaration of those facts, under oath, along with relevant documentary evidence which qualifies the applicant for the refund. In no event may a refund exceed the amount of the Park Fee actually paid.

B. Once each fiscal year the City shall make findings identifying all unexpended or uncommitted fees in the account.

C. Except as described in Subsection 18.18.110.D, upon application of the property owner the City shall refund the portions of any impact fee which have been on deposit over five (5) years and which are unexpended or uncommitted. Refunds shall be made to the current record owner or owners of the development on a prorated basis, together with accrued interest.

D. With respect to fees unexpended or uncommitted within five (5) years of deposit in the Park Fee account, the City may make findings to identify the purpose to which the fee is to be put and to demonstrate a reasonable relationship between the fee and the purpose for which it was charged. If the City makes such findings, the fees are exempt from the refund requirement.

E. The City may refund the unexpended or uncommitted portion of Park Fees by direct payment, by offsetting such refunds against other Park Fees due for residential development on the subject property, or by other means subject to agreement by the property owner.

F. If the City finds that the administrative costs of refunding the unexpended or uncommitted Park Fees exceeds the amount to be refunded, the City, after a public hearing, notice of which has been published in accordance with State law and posted in three (3) prominent places within the area of each residential development subject to a refund, may determine that the funds shall be allocated for other park land acquisition or recreation improvement projects of the type for which the Park Fees were collected and which serve the residential development. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.18.120 Exemptions.

The following uses and types of residential development are exempt from the payment of Park Fees:

A. If the applicant is proposing to replace an existing legal dwelling unit or units with an equal or greater number of units on the same lot, then the fee will be paid only for the number of new dwelling units that exceed the number of the existing legal dwelling units on that lot. A dwelling unit shall be considered existing if it is a legal dwelling unit as defined in Section 21.15.910 (or any successor section thereto) and it existed on the lot within twelve (12) months prior to the application for a building permit for the replacement unit or units.

B. The placement or installation of a replacement mobile home as defined in Section 21.15.1770 (or any successor section thereto) on a separate lot, mobile home park space or pad when a park and recreation facilities fee for such lot or space has been previously paid pursuant to this chapter; or when a mobile home legally existed on such park space or pad within twelve (12) months prior to construction approval for the replacement mobile home.

C. The relocation of existing legal dwelling units from one location in the City to another.

D. The legalization of an existing illegal dwelling unit existing prior to January 1, 1964, for which an administrative use permit is approved in accordance with Subsection 21.25.403.D (or any successor section thereto).

E. Property rented, leased, sold, conveyed or otherwise transferred, at a rental price or purchase price which does not exceed the "affordable housing cost" as defined in Section 50052.5 of the California Health and Safety Code when provided to a "lower income household" as defined in Section 50079.5 of the California Health and Safety Code or "very low income household" as defined in Section 50105 of the California Health and Safety Code or "moderate income household" as defined in Section 50093 of the Health and Safety Code. This exemption shall require the applicant to execute an agreement to guarantee the units shall be maintained for very low, lower and moderate -income households whether as units for rent or for sale or transfer, for the lesser of a period of fifty-five (55) years or the actual life or existence of the structure, including any addition, renovation or remodeling thereto. The agreement shall be in the form of a deed restriction, second trust deed, or other legally binding and enforceable document

acceptable to the City Attorney and shall bind the owner and any successor-in-interest to the real property being developed. The agreement shall subordinate, if required, to any State or Federal program providing affordable housing to very low, lower or moderate-income households. The agreement shall be recorded with the Los Angeles County Recorder prior to the issuance of a Certificate of Occupancy. The City's Housing and Neighborhood Services Bureau shall be notified of pending transfers or purchases and give its approval of the purchaser's qualifying income status and purchase price, prior to the close of escrow. The City's Housing and Neighborhood Services Bureau shall be notified of pending rentals and give its approval of proposed tenant's qualifying income status and rental rate, prior to the tenant's occupancy. Applicant or any successor-in-interest shall be required to provide annually, or as requested, the names of all tenants or purchasers, current rents, and income certification to ensure compliance. Voluntary removal of the housing restriction or violation of the restriction shall be enforced by the Director and shall require the applicant or any successor-in-interest to pay the then applicable Park Fee at the time of voluntary conversion or as imposed at the time of violation on the unit in violation, plus any attorneys' fees and costs of enforcement if applicable.

F. Where no additional dwelling unit or units and/or no gross floor area is added, the following construction work is exempt:

1. The alteration, remodeling, rehabilitation, or other improvements or modifications to existing buildings or structures.

2. The rebuilding of existing buildings or structures destroyed by an act of God.

3. The rehabilitation or replacement of existing buildings or structures in order to comply with City mandated seismic safety requirement.

4. The rehabilitation or replacement of existing buildings or structures destroyed by imminent public hazard, acts of terrorism, sabotage, vandalism, warfare or civil disturbance; provided however that such destruction was not caused or in any manner accomplished, instigated, motivated, prompted, incited, induced, influenced, or participated in by any persons or their agents having any interest in the real or personal property at the location. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-21-0035 § 4, 2021; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.18.130 Audits.

Any person may request an audit of the Park Fee in order to determine whether the Park Fee exceeds the amount reasonably necessary to provide the park land acquisition and recreation improvements to serve new residential development at the City's established service level standards. Upon such request for an audit, the City Council may retain an independent auditor to conduct an audit to determine whether the Park Fee is reasonable. Any costs incurred by the City in having the audit conducted by an independent auditor may be recovered from the person who requests the audit. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.18.140 Appeals.

A. An applicant may appeal, by protest, any imposition of the Park Fee by filing a notice of appeal with the City Clerk at any time prior to, and in no case later than ninety (90) days after, the applicant pays the required fee.

B. A valid appeal by protest of the imposition of the Park Fee shall meet both of the following requirements:

1. Tendering in advance of the appeal any required payment in full or providing assurance of payment satisfactory to the City Attorney;

2. Serving written notice on the City including:

a. A statement that the required payment has been tendered under protest or that required conditions have been satisfied,

b. A statement informing the City of the factual elements of the dispute and the legal theory forming the basis of the protest,

c. The name and address of the applicant,

d. The name and address of the property owner,

e. A description and location of the property,

f. The number of residential units or dwelling unit type proposed, as appropriate, and

g. The date of imposition of the Park Fee upon the residential development.

C. The City Council shall schedule a hearing and render a final decision on the applicant's appeal within one hundred sixty (160) days after the date the applicant files a valid appeal.

D. The City Council hearing shall be administrative. Evidence shall be submitted by the City and by the applicant and testimony shall be taken under oath.

E. The burden of proof shall be on the applicant to establish that the applicant is not subject to imposition of the Park Fee pursuant to the express terms of this chapter and applicable State law.

F. If the Park Fee has been paid in full or if the notice of appeal is accompanied by a cash deposit, letter of credit, bond or other surety acceptable to the City Attorney in an amount equal to the Park Fee calculated to be due, the application for development approval shall be processed. The filing of a notice of appeal shall not stay the imposition or the collection of the Park Fee calculated by the City to be due unless sufficient and acceptable surety has been provided.

G. If as a result of an appeal pursuant to this section or judicial review pursuant to Section 18.18.150, a Park Fee is reduced or waived, the City Council may determine whether and how such reduction or waiver may impact the Park Fee calculation methodology. If the City Council determines that park and recreation needs are correspondingly reduced, the City Council may amend the Park Fee calculation methodology, the applicable Park Fee, or take such other action as it may deem appropriate. If the City Council determines that park and recreation needs remain the same, the City Council shall appropriate funds in an amount equal to the reduction or waiver of Park Fees and shall deposit same to the subfund or take such other action as it may deem appropriate.

H. Any petition for judicial review of the City Council's final decision shall be made in accordance with applicable State law and pursuant to Section 18.18.150. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.18.150 Judicial review.

A. Any judicial action or proceeding to attack, review, set aside, void or annul the ordinance codified in this chapter, or any provision thereof, or amendment thereto, shall be commenced within one hundred twenty (120) days of the effective date of the ordinance codified in this chapter, resolution, or any amendment thereto.

B. Any judicial action or proceeding to attack, review, set aside or annul the imposition or collection of a Park Fee on a development shall be preceded by a valid appeal by protest pursuant to Section 18.18.140 hereof and a final decision of the City Council pursuant thereto and shall be filed and service of process effected within one hundred eighty (180) days after the hearing of appeal regarding the imposition of the Park Fee upon the development. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.18.160 Amendment procedures.

At least once every year after the first year that this chapter has been effective, prior to City Council adoption of the annual budget and capital improvements program, staff shall prepare a report to the City Council on the subject of impact fees and shall incorporate:

A. Recommendations on amendments, if appropriate, to this chapter or to resolutions establishing impact fee amounts.

B. Proposed changes to the Park Fee report identifying capital improvements to be funded by impact fees.

C. Proposed changes in the impact fee calculation methodology or variables pertaining thereto.

D. Proposed changes to impact fee rates or schedules. Based upon the report and such other factors as the City Council deems relevant and applicable, the City Council may amend this chapter and resolutions establishing impact fee rates or schedules. Changes to the impact fee rates or schedules may be made by resolution. Any change which increases the amount of the fee shall be adopted by the City Council after a noticed public hearing. Nothing herein precludes the City Council or limits its discretion to amend this chapter, the Park Fee report or resolutions establishing impact fee rates or schedules at such other times as may be deemed necessary. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.18.170 Effect of Park Fee on zoning and subdivision regulations.

This chapter shall not affect, in any manner, the permissible use of property, density of development, design and improvement standards and public improvement requirements or any other aspect of the development of land or construction of buildings, which may be imposed by the City pursuant to the zoning regulations, subdivision regulations or other ordinances or regulations of the City, which shall be operative and remain in full force and effect without limitation with respect to all such residential development projects. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.18.180 Park Fee as additional and supplemental requirement.

The Park Fee imposed by this chapter is a fee imposed on residential development projects reflecting its proportionate share of the cost of providing park land and improvements necessary to meet the needs created by such development at established City service level standards. As such, the Park Fee is additional and supplemental to, and not in substitution of, on-site open space requirements imposed by the City pursuant to zoning, subdivision and other City ordinances and requirements. In no event shall an applicant for development approval be obligated to pay a Park Fee in excess of that calculated pursuant to this chapter, which shall not individually or collectively exceed the reasonable cost of providing park land and recreation improvements to such residential development project at established City service level standards. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.19 SENSITIVE COASTAL RESOURCE IMPACT FEE

18.19.010 Legislative findings.

A. The State of California, through the enactment of Government Code Sections 66001 through 66009 has authorized the City to impose development impact fees on new development for the purposes of funding the public infrastructure and services necessary to serve that new development.

B. The imposition of development impact fees is one of the preferred methods of ensuring that development bears a proportionate share of the cost of capital facilities, infrastructure, services and related costs necessary to accommodate such development. This must be done in order to promote and protect the public health, safety and welfare.

C. That the continuing increase in the development of residential and nonresidential construction in the Southeast Area Specific Plan (SEASP) (SP-2) plan area has created an urgency in that funds are needed for the increased demand for additional infrastructure and services required to protect and sustain sensitive coastal resources which are required to serve the increasing residential and workforce population of the SEASP plan area.

D. The fees established pursuant to this Chapter are derived from, are based upon, and do not exceed the costs of providing additional infrastructure and services required to protect and sustain sensitive coastal resources attributable to new res-

idential or nonresidential construction, in areas designated for mixed-use, community core and mixed-use marina in the SEASP plan area. The additional infrastructure and services include a baseline study, conducted prior to new development, to document the state and function of the buffer area and adjacent wetlands; monitoring that is related to impacts of nearby development (new residents and increased business patrons) such as damage from pedestrians/hikers in the buffer and wetlands area, exposure to non-native seeds from landscaping, lighting, and increased trash and debris; periodic trash and debris removal of the buffer area and adjacent wetlands and administrative costs associated with the Sensitive Coastal Resource Impact Fee program. The activities covered by the Sensitive Coastal Resource Impact Fee are specifically targeted to address the issues of increased public use and increased litter, trash, and debris arising from new development and increased population and economic activity.

E. The fees collected pursuant to this Chapter shall be used to finance the infrastructure and services identified in Subsection D.

F. A detailed study of the nexus between anticipated new development to be located in areas designated for mixed-use, community core and mixed-use marina uses in the SEASP plan area and the additional infrastructure and services required to protect and sustain sensitive coastal resources (inclusive of wetlands, buffers, and habitat) as a result of the anticipated increase in development has been prepared. This study is entitled the "Nexus Study for Sensitive Coastal Resources Impact Fee" for the City of Long Beach dated August 31, 2022 ("the Study") which is incorporated herein by reference as though set forth in full, word for word.

G. The fees collected shall apply to the areas designated for mixed-use, community core and mixed-use marina uses as shown in Figure A-1 in the Appendix to the Study and as further described in Section 6 of the Study.

H. There is a reasonable relationship between the need for the additional infrastructure and services required to protect and sustain sensitive coastal resources set forth in Subsection D and the impacts of the types of development for which the corresponding fee is charged.

I. There is a reasonable relationship between the fee's use and the type of development for which the fee is charged.

J. There is a reasonable relationship between the amount of the fee and the cost of the additional infrastructure and services or portion thereof attributable to the development on which the fee is imposed. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0032 § 1, 2022)

18.19.020 Purpose.

A Sensitive Coastal Resource Impact Fee is hereby imposed on new residential and nonresidential development for the purpose of assuring that the impacts created by said new development pay its fair share of the costs required to support needed additional infrastructure and services and related costs necessary to accommodate such development. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0032 § 1, 2022)

18.19.030 Definitions.

A. "Accessory use" is as defined in Section 21.15.060 of this Code.

B. "Applicant" means the property owner, or duly designated agent of the property owner, for which a request for building permit is received by the City.

C. "Building permit" means the City permit required for new building construction and/or additions which add square footage pursuant to Title 18 of this Code. Neither a grading permit nor a foundation permit shall be considered a building permit for purposes of this Chapter.

D. "Calculation" means the point in time at which the City calculates the Sensitive Coastal Resource Impact Fee to be paid by the applicant. Calculation will generally occur at the time of issuance of the applicable building permit but may occur earlier in the development approval process.

E. "City Manager" means the City Manager of the City of Long Beach or other municipal officials he/she may designate to carry out the administration of this Chapter.

F. "Collect", or "collection" means the point in time at which the Sensitive Coastal Resource Impact Fees are paid by the applicant. Collection will occur on the date of final inspection or the date a certificate of occupancy or temporary certificate of occupancy, whichever occurs first.

G. "Development" means the addition of new residential square footage and/or new nonresidential square footage to an undeveloped, partially developed or redeveloped site and involving the issuance of a building permit and certificate of occupancy for such construction, reconstruction or use. Development does not include the following so long as no additional gross floor area is added:

1. A permit to operate;

2. A permit for the internal alteration, remodeling, rehabilitation, or other improvements or modifications to an existing structure;

3. The rebuilding of a structure destroyed by an act of God or the rehabilitation or replacement of a building in order to comply with the City's seismic safety requirements;

4. Parking facilities; or

5. The rehabilitation or replacement of a building destroyed by imminent public hazard, acts of terrorism, sabotage, vandalism, warfare or civil disturbance except where said destruction was caused or in any manner accomplished, instigated, motivated, prompted, incited, induced, influenced, or participated in by any persons or their agents having any interest in the real or personal property at the location.

H. "Dwelling unit" or "DU" is as defined in Section 21.15.910 of this Code.

I. "Fee" means a Sensitive Coastal Resource Impact Fee imposed by the City of Long Beach in accordance with this Chapter.

J. "Fee setting resolution" means and refers to the City resolution specifying the Sensitive Coastal Resource Impact Fee per net increase in gross building square footage for residential and nonresidential development, by type and by location. The Sensitive Coastal Resource Impact Fee set forth in the fee-setting resolution may be revised pursuant to Section 18.19.140 and applicable state law.

K. "Community Development Department" means the Community Development Department of the City of Long Beach.

L. "Gross building square footage" means the total area of a residential and/or nonresidential development measured from the exterior building lines of each floor with respect to enclosed spaces but excluding parking spaces whether or not enclosed. For purposes of this ordinance, the term "enclosed spaces" specifically includes, but is not limited to, an area available to and customarily used by the residential occupants and/or general public and all areas of business establishments generally accessible to the public such as fenced or partially fenced in areas of garden centers attached to and serving the primary structure.

M. "Mixed use" is as defined in Section 21.15.1760 of this Code.

N. "Nonresidential development" means a development undertaken for the purpose of creating gross floor area, excluding dwelling units, but which includes, and is not limited to, commercial, industrial, retail, office, hotel/motel, and warehouse uses involving the issuance of a building permit for such construction, reconstruction or use.

O. "Principal use" is as defined in Section 21.15.2170 of this Code.

P. "Residential development" means a development undertaken for the purpose of creating a new dwelling unit or units and involving the issuance of a building permit and certificate of occupancy for such construction, reconstruction or use. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0032 § 1, 2022)

18.19.040 Fund established.

A Sensitive Coastal Resource Impact Fee fund is established. The Sensitive Coastal Resource Impact Fee fund is a fund to be utilized for payment of the actual or estimated costs of additional infrastructure and services required to protect and

sustain sensitive coastal resources related to new residential and nonresidential construction as described in this Chapter and shall be administered in compliance with Government Code Section 66006. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0032 § 1, 2022)

18.19.050 Sensitive Coastal Resource Impact Fee.

There is imposed a Sensitive Coastal Resource Impact Fee on all new residential and nonresidential development in the areas designated for specific parcels mixed-use community core and mixed-use marina uses shown in Figure A-1 in the Appendix to the Study as those terms are defined in this Chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0032 § 1, 2022)

18.19.060 Fee imposed.

A. Any person who, after the effective date of this ordinance, seeks to engage in residential or nonresidential development as defined in this Chapter on one or more of the parcels identified in Figure A-1 in the Appendix to the Study by obtaining a building permit is required to pay a Sensitive Coastal Resource Impact Fee in the manner and amount as set forth in the then current fee-setting resolution. The Sensitive Coastal Resource Impact fee imposed pursuant to this Chapter shall not apply to those projects that have been granted a final entitlement or building permit approval by the Department of Community Development before the effective date of this Chapter.

B. No certificate of occupancy, temporary certificate of occupancy, final inspection approval, as applicable, for the activities listed in Subsection A of this Section shall be issued unless and until the Sensitive Coastal Resource Impact Fee required by this Chapter has been paid to the City. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0032 § 1, 2022)

18.19.070 Calculation of Sensitive Coastal Resource Impact Fee.

A. The Director of the Department of Community Development shall calculate the amount of the applicable Sensitive Coastal Resource Impact Fee due as specified in the then current fee-setting resolution.

B. The Sensitive Coastal Resources Impact Fee applies to development that results in a net increase in gross residential or nonresidential building square footage.

C. The Director of the Department of Community Development shall calculate the amount of the applicable Sensitive Coastal Resource Impact Fee due by:

1. Determining the gross building square footage for the development project and multiplying the same by the Sensitive Coastal Resource Impact Fee amount as established by the then current fee-setting resolution;

2. For a development project that would result in the demolition or elimination of then-existing residential or nonresidential building space, the fee would be determined by calculating the gross building square footage for the new construction and multiplying the same by the Sensitive Coastal Resource Impact Fee amount as established by the then current-fee setting resolution less a credit for the reduction or eliminated residential or nonresidential gross building square footage which is calculated by multiplying the eliminated building square footage by the Sensitive Coastal Resource Impact Fee amount as established by the then current-fee setting resolution;

3. The credit for reducing or eliminating residential or nonresidential building square footage shall not exceed the amount of the fee required for the new construction. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0032 § 1, 2022)

18.19.080 Payment of fee.

A. The City shall collect from the applicant the Sensitive Coastal Resource Impact Fee prior to the issuance of a certificate of occupancy, temporary certificate of occupancy, final inspection, whichever occurs first.

B. Except for an administrative charge that shall be allocated to the Department of Community Development, all funds collected shall be properly identified and promptly transferred for de-

posit in the Sensitive Coastal Resource Impact Fee fund and used solely for the purposes specified in this Chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0032 § 1, 2022)

18.19.090 Use of funds.

A. Funds collected from the Sensitive Coastal Resource Impact Fee shall be used to cover a limited set of activities as associated with an increase in population near sensitive coastal resources attributable to new residential and nonresidential construction and shall include:

1. The cost to conduct a baseline study to document the state and function of the buffer area and adjacent wetlands;

2. Monitoring that is related to impacts of nearby development (new residents and increased business patrons) such as damage from pedestrians/hikers in the buffer and wetland areas, exposure to non-native seeds from landscaping, lighting, and increased trash and debris;

3. Periodic trash and debris removal from the buffer area and adjacent wetlands; and

4. Administrative costs associated with the Sensitive Coastal Resource Impact Fee program.

B. In the event that bonds or similar debt instruments are issued for advanced provision of the activities for which Sensitive Coastal Resource Impact Fees may be expended, impact fees may be used to pay debt service on such bonds or similar debt instruments to the extent that the activities provided are of the type described in Subsection A of this Section.

C. Funds may be used to provide refunds as described in Section 18.19.100. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0032 § 1, 2022)

18.19.100 Refund.

A. Any applicant who has paid a Sensitive Coastal Resource Impact Fee pursuant to this Chapter may apply for a full or partial refund of same, if, within one (1) year after collection of the Sensitive Coastal Resource Impact Fee the development project has been modified, pursuant to appropriate City ordinances and regulations, resulting in a reduction in the gross building square footage or the applicability of an exemption pursuant to Section 18.19.110 of this Chapter. The City shall retain a sum equaling twenty percent (20%) of the impact fee paid by the applicant to offset the administrative costs of refund. The applicant must submit an application for such a refund in accordance with Chapter 3.48 of this Code. In no event shall a refund exceed the amount of the Sensitive Coastal Resource Impact Fee actually paid.

B. Any funds collected pursuant to this chapter which remain unexpended or uncommitted five or more years after their deposit may be refundable pursuant to Government Code Section 66001(e) with interest accrued. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0032 § 1, 2022)

18.19.110 Exemptions and credits.

A. Exemptions. Any claim of exemption must be made no later than the time of application for a building permit. The following shall be exempted from payment of the Sensitive Coastal Resource Impact Fee:

1. Alterations or expansion of an existing residential building where no additional gross residential square footage is added and where the use is not changed;

2. The replacement of a building or structure destroyed by fire, flood, earthquake or other act of God, with a new building or structure of the same size and use;

3. Nonresidential Development: Construction or occupancy of a new nonresidential building or structure or an addition to or expansion of an existing nonresidential building or structure of three thousand (3,000) gross square feet or less;

4. Affordable Housing for Lower Income Households. Property rented, leased, sold, conveyed or otherwise transferred, at a rental price or purchase price which does not exceed the "affordable housing cost" as defined in Section 50052.5 of the California Health and Safety Code when provided to a "lower income household" as defined in Section 50079.5 of the California Health and Safety Code or "very low income household" as defined in Section 50105 of the California Health and

Safety Code. This exemption shall require the applicant to execute an agreement to guarantee that the units shall be maintained for lower and very low-income households whether as units for rent or for sale or transfer, for the lesser of a period of thirty years or the actual life or existence of the structure, including any addition, renovation or remodeling thereto. The agreement shall be in the form of a deed restriction or other legally binding and enforceable document acceptable to the City Attorney and shall bind the owner and any successor-in-interest to the real property being developed. The agreement shall subordinate, if required, to any state or federal program providing affordable housing to lower and very low-income households. The agreement shall be recorded with the Los Angeles County Recorder prior to the issuance of a certificate of occupancy. The City's Housing Services Bureau shall be notified of pending transfers or purchases and give its approval of the purchaser's qualifying income status and purchase price, prior to the close of escrow. The City's Housing Services Bureau shall be notified of pending rentals and give its approval of proposed tenant's qualifying income status and rental rate, prior to the tenant's occupancy. Applicant or any successor-in-interest shall be required to provide annually, or as requested, the names of all tenants or purchasers, current rents, and income certification to ensure compliance. Voluntary removal of the housing restriction or violation of the restriction shall be enforced by the City's Housing Services Bureau and shall require the applicant or any successor-in-interest to pay the then applicable Sensitive Coastal Resource Impact Fee at the time of voluntary conversion or as imposed at the time of violation on the unit in violation, plus any attorneys' fees and costs of enforcement, if applicable.

5. Hospitals as that term is defined in Section 21.15.1370 of this Code.

B. Credits. Any applicant whose development is located within a Community Facilities District (CFD), and is subject to the assessments thereof, shall receive an offset credit towards the fees established by this Chapter to the extent that the assessments fund improvements within the CFD which would otherwise be funded by the development impact fees established by this Chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0032 § 1, 2022)

18.19.120 Appeals.

A. An applicant may appeal, by protest, any imposition of the Sensitive Coastal Resource Impact Fee by filing a notice of appeal with the City Clerk within ninety (90) days after the applicant pays the required fee.

B. A valid appeal by protest of the imposition of the Sensitive Coastal Resource Impact Fee shall meet all of the following requirements:

1. Tendering in advance of the appeal any required payment in full or providing assurance of payment satisfactory to the City Attorney;

2. Serving written notice on the City including:

a. A statement that the required payment has been tendered under protest or that required conditions have been satisfied;

b. A statement informing the City of the factual elements of the dispute and the legal theory forming the basis of the protest;

c. The name and address of the applicant;

d. The name and address of the property owner;

e. A description and location of the property;

f. The gross building square footage, by land use or dwelling unit type, as appropriate; and

g. The date of issuance of the building permit.

C. The City Council shall schedule a hearing and render a final decision on the applicant's appeal within sixty (60) days after the date the applicant files a valid appeal.

D. The City Council hearing shall be administrative. Evidence shall be submitted by the City and by the applicant and testimony shall be taken under oath.

E. The burden of proof shall be on the applicant to establish that the applicant is not subject to

the imposition of the Sensitive Coastal Resource Impact Fee pursuant to the express terms of this Chapter and applicable state law.

F. If the Sensitive Coastal Resource Impact Fee has been paid in full or if the notice of appeal is accompanied by a cash deposit, letter of credit, bond or other surety acceptable to the City Attorney in an amount equal to the Sensitive Coastal Resource Impact Fee calculated to be due, the application for the building permit shall be processed. The filing of a notice of appeal shall not stay the imposition or the collection of the Sensitive Coastal Resource Impact Fee calculated by the City to be due unless sufficient and acceptable surety has been provided.

G. Any petition for judicial review of the City Council's final decision shall be made in accordance with applicable state law and pursuant to Section 18.19.130. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0032 § 1, 2022)

18.19.130 Judicial review.

A. Any judicial action or proceeding to attack, review, set aside, void or annul the ordinance codified in this Chapter, or any provision thereof, or resolution, or amendment thereto, shall be commenced within ninety (90) days of the effective date of the ordinance codified in this Chapter, resolution, or any amendment thereto.

B. Any judicial action or proceeding to attack, review, set aside or annul the imposition or collection of a Sensitive Coastal Resource Impact Fee on a development shall be preceded by a valid appeal by protest pursuant to Section 18.19.120 hereof and a final decision of the City Council pursuant thereto and shall be filed and service of process effected within ninety (90) days after the hearing on appeal regarding the imposition of a Sensitive Coastal Resource Impact Fee upon the development. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0032 § 1, 2022)

18.19.140 Reporting, Findings and amendment procedures.

A. Within 180 days after the last day of each fiscal year, the Director of the Department of Community Development shall evaluate progress in implementation of the Sensitive Coastal Resource Impact Fee Program and shall prepare a report thereon to the City Council in accordance with Government Code Section 66006 incorporating among other things:

1. The infrastructure, services, including any baseline study, commenced, purchased or completed utilizing monies from the Sensitive Coastal Resource Impact Fee fund;

2. The amount of the fees collected, and the interest earned;

3. The amount of Sensitive Coastal Resource Impact Fees in the fund; and

4. Recommended changes to the Sensitive Coastal Resource Impact Fee, including, but not necessarily limited to, changes in the Sensitive Coastal Resource Impact Fee Chapter or fee-setting resolution.

B. Based upon the reports and such other factors as the City Council deems relevant and applicable, the City Council may amend the ordinance codified in this Chapter or the fee-setting resolution implementing this Chapter. Changes to the Sensitive Coastal Resource Impact Fee rates or schedules may be made by amending the fee-setting resolution. Any change which increases the amount of the Sensitive Coastal Resource Impact Fee shall be adopted by the City Council only after a noticed public hearing. Nothing herein precludes the City Council or limits its discretion to amend the ordinance codified in this Chapter or the fee-setting resolution establishing Sensitive Coastal Resource Impact Fee rates or schedules at such other times as may be deemed necessary.

C. Every five years, the City Council shall evaluate the Sensitive Coastal Resource Impact Fee program. The five-year report shall include findings with respect to that portion of Sensitive Coastal Resource Impact Fee fund remaining unexpended, whether committed or uncommitted pursuant to Government Code Section 66001, subdivision (d)(1) including, but not limited to:

1. The purpose to which the Fee is to be put;

2. Demonstration of a reasonable relationship between the fee and the purpose for which it is charged;

3. Identification of all sources and amounts of funding anticipated to complete incomplete improvements; and

4. Designation of the approximate dates on which the additional funds sufficient for completing the improvements are expected to be deposited in the Fund. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0032 § 1, 2022)

18.19.150 Effect of Sensitive Coastal Resource Impact Fee on zoning and subdivision regulations.

This Chapter shall not affect, in any manner, the permissible use of property, density/intensity of development, design and improvement standards and public improvement requirements or any other aspect of the development of land or construction of buildings, which may be imposed by the City pursuant to the City's zoning regulations, subdivision regulations or other ordinances or regulations of the City, which shall be operative and remain in full force and effect without limitation with respect to all residential and nonresidential development. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0032 § 1, 2022)

18.19.160 Violation—Penalty.

A violation of this Chapter shall be prosecuted in the same manner as misdemeanors are prosecuted; and upon conviction, the violator shall be punishable according to law. However, in addition to or in lieu of any criminal prosecution, the City shall have the power to sue in civil court to enforce the provisions of this Chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0032 § 1, 2022)

18.19.170 Severability.

If any section, phrase, sentence, or portion of this Chapter is for any reason held invalid or unconstitutional by any court of competent jurisdiction, such portions shall be deemed a separate, distinct, and independent provision; and such holding shall not affect the validity of the remaining portions thereof. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0032 § 1, 2022)

CHAPTER 18.20 UNSAFE BUILDINGS OR STRUCTURES

18.20.010 Substandard buildings—Proceedings for repair.

Whenever the Building Official determines by inspection that an existing building is substandard, or constitutes a nuisance, he or she shall institute proceedings to cause the repair, rehabilitation, vacation or demolition of such building. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.020 Substandard buildings—Notice required.

The Building Official shall give notice specifying the inadequacies and hazards to be corrected. Such notice shall also specify that the building may be ordered vacated if remedial measures are not commenced and completed within the time specified in the notice which time shall be such as the Building Official concludes is reasonable in view of the circumstances, but which shall in no event require commencement of such work within less than thirty (30) days nor completion within less than ninety (90) days.

This section shall not limit the Building Official's authority to order or undertake repair, rehabilitation, vacation, demolition, or other immediate corrective action, to abate an imminently hazardous, substandard, or dangerous building or structure where authorized by law. (ORD-26-0004 § 8, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.030 Substandard buildings—Service of notice.

Notices shall be given by service as provided in this chapter. Service of such notice in the manner

therein prescribed shall constitute notice to the owner of such building, and failure of any such person to receive actual notice shall in no manner affect the validity of the subsequent proceedings taken hereunder. In addition to giving such notice, the Building Official shall also prepare and cause to be recorded with the county recorder, a certificate stating that the building described is a substandard building, or is a public nuisance, and that the owner thereof has been so notified. When, and if, all required corrections to such a building have been made, or where the Building Official determines that terminating the recordation of substandard or nuisance is appropriate to further the City's interests in remediating the complained-of conditions, the Building Official shall cause the certificate of substandard buildings or public nuisance to be terminated and provide said document to the owner to be recorded with the County Recorder. (ORD-26-0004 § 9, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.040 Substandard buildings—Order to vacate.

If, after the expiration of time for commencement or completion as set forth in the Notice sent pursuant to Section 18.20.030, the Building Official may order the building vacated and posted as specified in Section 18.20.060. If the building is unoccupied, the order to vacate may be immediate. If the building is occupied, a notice of intent to order the building vacated shall be given thirty (30) days prior to issuing such order. (ORD-26-0004 § 10, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.050 Substandard buildings—Vacating and reoccupying.

Any substandard buildings, ordered vacated in accordance with Sections 18.20.010 through 18.20.060, shall be immediately vacated and shall not be reoccupied until the inadequacies or hazards specified by the Building Official in his or her notice as provided in Sections 18.20.010 through 18.20.060 have been eliminated and approval obtained from the Building Official for reinstatement of the occupancy. No person shall occupy or cause to be occupied any building or portion thereof which has been ordered vacated until approval of such occupancy is reinstated by the Building Official. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.060 Substandard buildings—Posting of placard on vacated building.

A. Each such building ordered vacated shall be locked and otherwise secured against ingress, and the Department of Community Development shall post thereon a placard stating:

SUBSTANDARD BUILDING

Do Not Occupy
By Order of
Department of Community Development
City of Long Beach

This building has been ordered vacated and it is a misdemeanor to occupy this building. It is a misdemeanor to remove this placard. Sections 18.20.010 through 18.20.060 of the Long Beach Municipal Code.

B. Notice of such posting and a copy of the posted notice shall be served on the owner by certified mail at the time of posting. Notice of the posting sent to the owner shall inform the owner that the owner shall rehabilitate, remove, or demolish the building within sixty (60) days of the order to vacate. No person other than a representative of the Department shall remove such a placard from any building where it has been officially posted.

C. If the building is not removed or demolished on or before the expiration of the time specified in the notice to the owner, the Building Official shall cause such building to be thoroughly inspected and shall make a written report or record of his or her findings with respect thereto.

D. If the rehabilitation, removal or demolition has not been accomplished within the above mentioned sixty (60) day period, then the Building Official may take any action authorized by law to rehabilitate, remove, or demolish the building.

E. None of these provisions limit or supersede the City's authority to use summary abatement where authorized by law. (ORD-26-0004 § 11, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.070 Nonconforming buildings—Notice to comply or vacate.

Whenever any building or portion thereof is being maintained, occupied or used contrary to the provisions of this title or municipal code, the Building Official shall order such unlawful use, occupancy or maintenance to be discontinued by a date certain. If the maintenance, occupancy or use of any such building or portion thereof is not made to comply with the requirements of this title within the time set forth in the aforesaid order, the Building Official may order that the building, or the portion thereof in which any such violation occurs, be vacated. Such vacation shall be immediate but shall be subject to appeal in accordance with the provisions of this chapter. No person shall use or occupy such building or portion of building so vacated until such unlawful use, occupancy or maintenance has been discontinued and approval obtained from the Building Official for reinstatement of the occupancy. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.080 Dangerous buildings or conditions—Correction proceedings.

Whenever the Building Official determines by inspection that any building or structure, or portion thereof, is dangerous as defined in Section 18.02.020, he or she shall institute proceedings to correct such dangerous conditions. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.090 Dangerous buildings or conditions—Inspection.

A. The Building Official, the Building Official's designee, and the members of the Board of Examiners, Appeals and Condemnation shall have the right of reasonable inspection of any building for the purpose of determining the condition thereof. No person shall refuse or interfere with such inspection by any such official.

B. For the purpose of such inspection, the Building Official may order any structural member or portion of the structural frame of any building, whether such building is already erected, or is in course of construction, to be exposed whenever he or she has reasonable grounds for believing that such structural member or frame is in an unsafe condition or does not conform to the requirements of this chapter. No owner, reputed owner or person having custody, control or management or in charge of maintenance, occupancy or use of such building who is served with such an order shall fail or refuse to forthwith fully uncover or expose the portion of the structural frame or structural member as required by such order. (ORD-26-0004 § 12, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.100 Dangerous buildings or conditions—Abatement proceedings.

All buildings or portions thereof which are determined to be dangerous as defined in Section 18.02.020 are public nuisances and shall be abated under the procedures set forth in this chapter for abatement of nuisances. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.110 Dangerous buildings or conditions—Summary abatement.

Where necessary in the opinion of the Building Official to protect life or property from an acutely dangerous condition, the Building Official may take emergency action to abate the hazard by

City forces as provided in this chapter or may order the building immediately vacated, posted unsafe, barricaded, utilities disconnected, or other appropriate protective remedy. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.120 Inspection of buildings—Report.

If the building is not demolished, the substandard conditions not corrected, or the nuisance not otherwise abated on or before the expiration of the time specified in the posted notice, the Building Official shall cause such building to be thoroughly inspected and shall make a written report or record of his or her findings with respect thereto. The report shall be maintained by the Department. A hearing before the Board of Examiners, Appeals and Condemnation shall be conducted only upon timely filing of an appeal by the owner or other interested party, in accordance with this chapter. (ORD-26-0004 § 13, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.130 Appeal to Board of Examiners, Appeals and Condemnation.

A. Any owner or other interested party may appeal a determination by the Building Official that a building or structure is substandard or constitutes a public nuisance by filing a written appeal with the Building Official within thirty (30) days after service of the notice of determination. An appeal filed pursuant to this section shall be in writing and shall identify the subject property, the appellant and the nature of the appellant's interest, state that the determination is being appealed, provide the basis for the appeal, and provide an address for service of notices related to the appeal. A timely appeal shall not be deemed invalid for failure to include technical or legal argument and may be supplemented prior to or at the hearing.

B. Upon the timely filing of an appeal by the owner or other interested party, the Board of Examiners, Appeals and Condemnation shall conduct a hearing for the purpose of reviewing the findings of the Building Official. The Board may conduct an independent investigation into the facts of such matter and the members thereof, or their authorized representatives, may inspect any building or structure involved therein.

C. Upon receipt of a timely appeal, notice of the time and place of the hearing shall be given by the Department to the appellant and any other persons entitled to notice under this chapter. The notice must be served at least ten (10) days prior to the date fixed for such hearing.

D. Any person claiming an interest in the building which is the subject of the hearing may appear before the Board and object to the determination of the Building Official. The Board shall take such evidence as may be necessary to determine whether the building or structure is substandard or is a public nuisance. Upon or after the conclusion of the hearing, the Board shall determine whether the building or structure is substandard or a nuisance and what alterations or repairs, if any, could be made in order to correct the substandard conditions or to abate the nuisance, or whether the total demolition thereof is required. The Board may establish a time not to exceed sixty (60) days of the Board's decision, within which such repairs, alterations, or demolition shall be completed, unless the Board makes a determination that the sixty (60) day timeframe would result in a substantial hardship to the owner; upon such a determination, the Board may grant a time not to exceed one hundred twenty (120) days within which such repairs, alterations, or demolition shall be completed.

E. Following the hearing, the Board shall make written findings of its determination. The Department shall cause a copy of those findings to be served upon the appellant by first class mail, certified mail, personal service, or other equivalent process. The time for completion of repairs or alterations, or the demolition of the building or structure, shall commence to run on the date such findings are caused to be sent to the appellant, whether personally delivered, posted, mailed, or other equivalent process. Simultaneously with ser-

vice of such written findings, a copy of the findings shall be filed in the office of the Building Official.

F. The decision of the Board of Examiners, Appeals and Condemnation shall be final and conclusive.

G. The timely filing of an appeal pursuant to this section shall stay the time period for commencement or completion of repairs or abatement set forth in the notice of determination issued by the Building Official. Upon issuance of a decision by the Board of Examiners, Appeals and Condemnation, the time period for compliance shall be as established by the Board pursuant to subsection (D) of this section, and shall supersede any prior compliance deadline. (ORD-26-0004 § 14, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.140 Reserved.

Editor's note—ORD-26-0004 § 30, adopted Feb. 3, 2026, repealed § 18.20.140 entitled "Appeals to City Council," which derived from: ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; and ORD-16-0026 § 1(Exh. A), 2016.

18.20.150 Demolition or repairs by City—Expense liability.

A. Within the limitations of the budget, the Building Official may cause any building, structure, or part thereof to be demolished, altered or repaired, at City expense. This authority applies where the building, structure, or part thereof has not been demolished, altered, or repaired within the time established by the Building Official, or, if applicable, within the time established by the Board of Examiners, Appeals and Condemnation following an appeal.

All expenses incurred by the Building Official on behalf of the City in connection with such work, including the applicable processing costs as set forth in the schedule of fees and charges established by City Council resolution and incidental enforcement costs shall become an indebtedness of the owner of the building or structure. A lien shall attach to the parcel of real property upon which the building is located and shall remain until either:

1. Payment is in full costs of correction or abatement, fees, and accrued interest and penalties, if any, has been made; or

2. The order requiring correction of substandard conditions or abatement is reversed by a final judgment of a court of competent jurisdiction.

B. Any person having the legal right to do so may repair or demolish a substandard building prior to such action by the City, but if the work is performed after the deadline established by the Board of Examiners, Appeals and Condemnation, the appropriate processing and other costs incurred by the City in preparing to do the work and all incidental enforcement costs are chargeable to the property. (ORD-26-0004 § 15, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.160 Service of notices and orders.

A. All notices and orders provided for by this chapter shall be in writing, shall state in general terms the conditions of the building or structure that are unsafe or dangerous, or in what manner it is substandard, or in what manner it constitutes a public nuisance, and the minimum requirements for its correction, or total costs that will be charged to the owner of the property. Service of such order shall be upon the owner thereof or upon the person causing or permitting the condition to exist, or the person having the custody, control, maintenance, occupancy, use or management of the building, and upon any lessee or mortgagee thereof if shown on the official records of the county, by delivering the same to either of said persons or their agents in charge of the building. As an alternate method of such service, such notice may be served by certified United States mail with return receipt requested, or by any substantially equivalent process. Service by this method shall be deemed complete upon deposit of such notice in the United States mail with prepaid postage affixed, or upon deposit with any substantially equivalent delivery

service. If, after reasonable diligence, either the identity of the owner thereof cannot be ascertained or such owner cannot be located, then such order shall be posted in one or more conspicuous places upon or near the entrance to the building.

B. Whenever the Building Official posts such a notice upon the property, it shall be posted at one (1) or more conspicuous places upon the building and shall be in substantially the following form:

NOTICE

To all persons owning or claiming any interest in this building:

You are notified that the Building Official of the City of Long Beach has determined that this building is (insert substandard or a nuisance) by reason of the following facts:

Pursuant to the provisions of the building regulations of the Long Beach Municipal Code, this building is substandard and/or constitutes a public nuisance, and the owner or owners of said building are hereby directed to correct deficiencies therein or to abate a nuisance existing therein or thereon. Further information regarding the facts may be obtained at the office of the Community Development Department of the City of Long Beach.

Unless this building is (how to be corrected or demolished) in the manner hereinabove specified, on or before the ____ day of _____20____, the Building Official of the City of Long Beach may cause such work to be done for and on behalf of the owner of said building, and all expenses incurred by the City for such work will be charged to, and become an indebtedness of, the owner or owners of said building to the City of Long Beach, and will become a lien against the real property on which such building is situated.

This notice does not constitute an order to vacate the building unless and until such an order is separately issued pursuant to this chapter.

Dated and posted this ____day of _____20____.

Building Official, City of Long Beach

C. No more than five (5) days after the notice is posted on the building, an additional copy of such notice shall be served in the manner provided in this chapter, upon the persons identified in subsection A of this section.

D. No owner or other person causing or permitting such condition to exist shall fail or refuse, after delivery or posting of such order, to correct such condition in accordance with the requirements of the order. (ORD-26-0004 § 16, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.170 Extensions of time to perform work.

Any time limit prescribed in this chapter for the performance of an act by an occupant, owner, or the building official may for good cause be extended by the Building Official. The failure to require the performance of any act within the time prescribed by this chapter shall not affect the validity of any order issued thereafter. (ORD-26-0004 § 17, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.180 Owner's responsibility for enforcement costs.

A. "Enforcement costs" include all costs incurred by the City in enforcing this chapter, including but not limited to:

1. the actual costs incurred by the City to correct or abate substandard conditions or nuisances, including demolition, repair, labor, materials, equipment, contractor services, and City staff time spent performing direct abatement work; and

2. incidental enforcement costs, including investigation, inspections, title searches, preparation and service of notices, administrative processing, and related staff time.

Enforcement costs do not include fees or charges adopted by resolution of the City Council and set forth in the City's schedule of fees and charges, which shall be assessed separately and are not subject to appeal under this chapter.

B. If the substandard conditions have not been corrected or the nuisance abated by the owner within the time frame established by the Building Official, as such time frame may be extended by the Building Official or modified on appeal to the Board of Examiners, Appeals and Condemnation, all enforcement costs incurred by the City in connection therewith shall be charged to and become an indebtedness of the owner of such property, except as provided below, whether or not the work is later performed by the City, by the owner, or by others. Incidental enforcement costs shall not be charged to, nor become an indebtedness of, a property owner who is the head of a low-income household (defined to be a household earning less than eighty percent of the county median income). (ORD-26-0004 § 18, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.190 Notice of enforcement costs.

When a building has been demolished, altered or repaired by the Building Official at City expense as authorized by Section 18.20.150, or when the owner is responsible for incidental enforcement costs as provided by Section 18.20.180, the Building Official shall prepare a statement showing the costs thereof. The Building Official shall thereupon give notice of the amount of such enforcement costs in the same manner as elsewhere provided in this chapter for service of notices. (ORD-26-0004 § 19, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

Editor's note—Prior to the inclusion of ORD-26-0004, § 18.20.190 was entitled "Abatement charges," as herein set out above.

18.20.200 Hearing on reasonableness of enforcement costs.

Within thirty (30) days from the date of service of a notice of enforcement costs, the property owner, or any other interested person, may file a written request for a hearing to contest the reasonableness of the enforcement costs incurred by the City. The request shall identify the subject property, state the basis for the objection, and provide an address for service of notices related to the hearing.

Upon receipt of a timely request, the matter shall be set for hearing before the Board of Examiners, Appeals and Condemnation for hearing at its next regularly held meeting that is not less than ten (10) days thereafter. Notice of the hearing shall be provided in the manner specified in this chapter.

The scope of the hearing shall be limited to the reasonableness of the enforcement costs and shall not include review of any fees, fines, penalties, or the underlying determination of substandard conditions or nuisance.

At the time set for such hearing, the Board of Examiners, Appeals and Condemnation shall hear all evidence pertinent to the reasonableness of such charges and shall then either confirm or modify the enforcement costs. The decision of the Board of Examiners, Appeals and Condemnation thereon shall be final. (ORD-26-0004 § 20, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.210 Interest on charges.

If the amount of the enforcement costs, as determined by the Board of Examiners, Appeals and Condemnation has not been paid within thirty (30) days after the date of hearing, the payment thereof shall thereupon become delinquent and the amount so determined shall thereafter bear interest at the rate of twelve percent (12%) until paid, as determined by the tax collector. If no hearing is demanded as to the reasonableness of the enforcement costs, the payment thereafter shall become delinquent sixty (60) days after notice of the charges for abatement is served by the Building Official; and such amount shall thereafter bear interest at the rate of twelve percent (12%) until paid, as determined by the tax collector. (ORD-26-0004 § 21, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.220 Transfer of collection.

The Building Official shall certify a list of all delinquent charges for correction of substandard conditions or nuisance abatement to the tax collector. Each parcel of property shall be described sufficiently to identify it in accordance with the records of the tax collector. The amount of the charges including such interest as has accrued after the delinquent date to July 1 of the year shall be set forth opposite the description by the tax collector. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.230 Method of collection.

Upon receipt of the list the tax collector shall enter the charges shown thereon for each parcel of property upon the current tax roll and shall proceed to collect the charges in the same manner as municipal ad valorem taxes, and penalties and interest for nonpayment thereafter shall attach as though the amounts were ad valorem taxes; provided, however, that no receipt for payment of ad valorem taxes appearing upon the tax roll as against a particular parcel shall be issued unless all such charges for collection of substandard conditions or nuisance abatement, and penalties thereon, entered upon that tax roll against the lot are first paid in full. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.240 Tax-sold property.

Upon the sale of any lot to the City for nonpayment of taxes, all charges for correction of substandard conditions or nuisance abatement for the parcel appearing upon the tax roll, together with the penalties thereon, shall be added to and become a part of the same delinquent tax record. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.250 Tax-sold property—Redemptions.

No certificate of redemption from sale for delinquent taxes shall be issued until all charges for correction or substandard conditions and nuisance abatement, and penalties entered on the delinquent tax records against the property involved, have first been paid in full. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.260 Error correction—Assessment cancellation.

A. The Building Official may, prior to certifying any such unpaid charges to the tax collector, correct any errors with respect to such taxes appearing upon his or her records.

B. After such taxes have been certified to the tax collector, the Council, by order entered on its minutes, may cancel any charges for correction of substandard conditions or nuisance abatement, or penalty, or any portion of either thereof, appearing on the tax records, which, because of error, is charged against the wrong property, or which has been paid but such payment has not been recorded upon the tax records, or which is based upon a clerical error in such records, or which was charged against property acquired subsequent to the lien date by the United States, by the State, or any city, or any school district or other political subdivision and, because of this public ownership, not subject to sale for delinquent assessments. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.270 Refunds.

Any charge for correction of substandard conditions or for nuisance abatement or penalty, or portion of either thereof, which is paid as the result of an erroneous assessment upon the wrong property, or which is paid more than once, or which is based upon a clerical error appearing in the tax records, may be refunded by the Council to the person entitled thereto; provided, however, that such refunds shall only be made upon the written application of the person entitled thereto, which must be filed with the City Clerk not later than one year after the date the erroneous pay-

ment was made. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.280 Notice to secure structure.

When any unoccupied building or structure is not properly secured, locked or closed, and is accessible to juveniles, transients and/or uninvited occupants, it shall be deemed to constitute an immediate health, fire or safety hazard, and the Building Official determines that the hazard is such as to require immediate closure, he shall serve the record owner and the person having control of such building or structure with notice to secure or close the same forthwith so as to prevent unauthorized persons from gaining access thereto. Notice shall be served as provided in this chapter and shall state that if the required work is not performed within forty-eight (48) hours after service of the notice, the City will perform such work and all expenses incurred by the City including, but not limited to, incidental processing and enforcement costs shall become an indebtedness of the owner and a lien on the property. Collection of such charges shall be accomplished in accordance with this title and Chapter 8.56. (ORD-26-0004 § 22, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.290 Emergency hazard abatement.

A. Abatement. When any condition of a building, structure, or property constitutes such a threat to life, limb, or property that it must be secured, closed, barricaded, demolished, or otherwise abated, as determined by the Building Official, Director of Public Works, the Health Official or their designees, the City may summarily secure, close, barricade, demolish or otherwise abate such building or structure without prior notice to the property owner. All costs incurred by the City in abating the hazard shall be borne by the property owner and failure to receive prior notice shall not affect or relieve the property owner's obligation for payment of such costs.

B. Notification. Notice of the Emergency Hazard Abatement shall be posted and a copy of the posted notice shall be served on the property owner by certified mail at the time of posting. (ORD-26-0004 § 23, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.20.300 Criminal prosecution.

Pursuant to Section 1.32.010, any violation of the provisions of Title 18 is a misdemeanor, and the notice, hearing, appeal and other administrative procedures contained in Title 18 shall not be a condition precedent to any criminal prosecutions. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.21 MAINTENANCE OF LONG-TERM BOARDED AND VACATED BUILDINGS

18.21.010 Purposes and definitions.

A. Purpose. Vacant buildings are a major cause and source of blight in both residential and non-residential neighborhoods, especially when the owner of the building fails to actively maintain and manage the building to ensure that it does not become a liability to the neighborhood. Vacant buildings (whether or not those buildings are boarded), substandard or unkempt buildings, and long-term vacancies discourage economic development and retard appreciation of property values. It is the responsibility of property ownership to prevent owned property from becoming a burden to the neighborhood and community and a threat to the public health, safety, or welfare. One vacant building which is not actively and well maintained and managed can be the core and cause of spreading blight.

B. Definitions. For the purposes of this chapter, the term "boarded building" shall mean a building whose doors, windows, and openings that have been covered for the purpose of preventing entry

into the building by persons or animals. (ORD-26-0004 § 24, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.21.020 Owner responsibilities.

A. No person shall allow a building or structure designed for human, industrial, or commercial use, or occupancy to stand vacant for more than thirty (30) days unless one of the following applies:

1. The building is the subject of an active building permit for repair or rehabilitation, or a permit for demolition, and the owner is progressing diligently to complete the repair or rehabilitation;

2. The building meets all applicable codes, does not contribute to blight, is ready for occupancy and is actively being offered for sale, lease, or rent;

3. The Building Official or designee determines that the building does not contribute to, and is not likely to contribute to, blight because the owner is actively maintaining and monitoring the building so that it does not contribute to blight. Active maintenance and monitoring shall include:

a. Maintenance and appropriate watering and care of landscaping and plant materials,

b. Maintenance of the exterior of the building, including, but not limited to, paint and finishes, in good condition,

c. Regular removal of all trash, debris and graffiti,

d. Maintenance of the building or structure in continuing compliance with all applicable codes and regulations,

e. Prevention of criminal activity on the premises, including, but not limited to, use and sale of controlled substances, prostitution, or other criminal street gang activity.

B. "Vacant Building" means any building or structure, or any portion thereof, including but not limited to units, storefronts, and other commercial spaces, which, in the determination of the Building Official, is either:

1. without a lawful resident or occupant;

2. not being put to a permitted lawful use and which:

a. is unsecured;

b. is secured by boarding or other similar means;

c. is a dangerous structure; or

d. has two (2) or more City municipal code violations.

C. The owner of any vacant or boarded building or structure, whether boarded by voluntary action of the owner or as a result of enforcement activity by the City, shall cause the boarded or vacant building to be rehabilitated for occupancy within sixty (60) days after the building or structure is boarded or becomes unoccupied. (ORD-26-0004 § 25, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.21.030 Monitoring program—Purpose.

A. Vacant buildings are a major cause and source of blight in residential and nonresidential neighborhoods, especially when the owner of the building fails to maintain and manage the building to ensure that it does not become a liability to the neighborhood. Vacant buildings often attract transients and criminals, including drug users. Use of vacant buildings by transients and criminals, who may employ primitive cooking or heating methods, creates a risk of fire for the vacant buildings and adjacent properties. Vacant properties are often used as dumping grounds for junk and debris and are often overgrown with weeds and grass. Vacant buildings which are boarded up to prevent entry by transients and other long-term vacancies discourage economic development and retard appreciation of property values.

B. Because of the potential economic and public health, welfare and safety problems caused by vacant buildings, the City needs to monitor vacant buildings, so that they do not become attractive nuisances, are not used by trespassers, are properly maintained both inside and out, and do not become a blighting influence in the neighborhood. City Departments involved in such moni-

toring include the Police, Fire, Health, and Community Development Departments. There is a substantial cost to the City for monitoring vacant buildings (whether or not those buildings are boarded up) which should be borne by the owners of the vacant buildings. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.21.040 Monitoring program—Department responsibility and fees.

A. Purpose. The Building Official or designee shall be responsible for administering a program for identifying and monitoring the maintenance of all vacant buildings or structures in the City.

B. Purposes. The purposes of the monitoring program shall be:

1. To identify buildings that become vacant;

2. To order vacant buildings that are open and accessible to be secured against unlawful entry per Long Beach Municipal Code Section 18.20.280;

3. To initiate proceedings against any vacant or boarded building or structure found to be substandard as defined in this title; and

4. To maintain surveillance over vacant or boarded buildings so that timely code enforcement proceedings are commenced in the event a building becomes substandard or a public nuisance.

C. Notice of vacant building.

1. Upon discovery of a potential vacant building by a code enforcement officer or receipt of a complaint about a vacant or boarded building from any source, the City may cause an inspection of the property in order to determine if the building or structure should be classified as a vacant building;

2. If the City determines that a building or portion of a building may be classified as a vacant building under this chapter, the City shall ascertain the identity of, and contact the owner or agent of the owner, and advise the owner in writing that the building or structure is vacant and that the following measures need to be taken by the owner:

a. Immediate measures to temporarily secure the building or structure from unauthorized entry,

b. Measures to permanently secure the building during the period of time that the building or structure remains vacant,

c. The posting of a sign or signs on the property in a conspicuous place, as determined by the City, which sign(s) shall notify the public of the owners or authorized agents' name and address and an emergency contact telephone number;

3. If the City determines that a building or structure is vacant it shall cause a "Notice of Vacant Building" to be recorded against the title of the property, which notice shall make reference to the provisions of this chapter and disclose that administrative penalties and costs may likewise be assessed against the owner and property as a result of the building or structure remaining in a vacant condition;

4. If the owner fails to take immediate measures to temporarily or permanently secure the building from unauthorized entry, the vacant building shall constitute a nuisance and the City may, without further notice, and by any lawful means, abate the nuisance. In this event, the owner shall be liable for the costs incurred by the City for inspections or to secure the building or structure, including costs incurred to ascertain ownership of the property and obtaining title information, preparing notices, and any and all administrative costs together with actual labor or material cost or expense incurred by the City to secure the building or structure or otherwise abate the nuisance. If the owner does not reimburse the City within thirty (30) days of being billed therefore, the City may file a lien against the property for all of the expenses incurred by the City.

D. Optional vacant building plan and timetable.

1. If the owner of a vacant building files a vacant building plan and timetable with the City not later than seven (7) days after the owner or

agent of the owner receives written notice pursuant to Subsection 18.21.040.C, the City is authorized to:

a. Suspend the processing of any citation or other remedy for violation of this chapter,

b. Extend the period of time in which the owner of a vacant building must secure the building.

2. The vacant building plan and timetable must be submitted on forms prepared by the City and must include, at a minimum, the following information:

a. A description of the premises, including the address thereof,

b. The names, addresses, and telephone numbers of all owners with a right of control over the vacant building or structure,

c. The names and addresses of all known lien holders and all other parties with an ownership interest in the vacant building or structure,

d. The name, address and telephone number of the owner's property manager or agent, and whether the property manager or agent has the authority to independently act on the owner's behalf to repair or maintain the property,

e. The period of time the building is expected to remain vacant,

f. If the owner plans on demolishing the building, the date the building is scheduled for demolition, and whether or not a permit has been issued for said demolition,

g. If the owner plans on returning the building to a lawful occupancy and use, the estimated date for returning the building to a lawful occupancy or use, and whether or not a permit has been issued to return the vacant building to a lawful occupancy or use,

h. A plan for regular inspection and maintenance of the building during the period of vacancy,

i. Measures the owner will employ to secure the building to prevent access by trespassers. One of the following methods must be used to secure the building as specified in the discretion of the City:

i. Installation of adequate windows and doors, or window and door coverings,

ii. Installation and maintenance of adequate locks for windows and doors,

iii. Installation of boards on windows and doors or security screening to the satisfaction of the City,

iv. Employment of security officers to the satisfaction of the City,

v. Installation, operation, and monitoring of an electronic security system, which monitors doors and windows by glass breakage or motion sensors, and a method of responding to alarms from the electronic security system, other than sole reliance on the City's Police Department,

vi. Any other methods as specified by the City.

j. Measures the owner will employ to monitor and inspect the property on a weekly basis. The weekly monitoring and inspection must be performed by the owner, property manager, or agent of the owner with full authority to maintain and make repairs to the property on a weekly basis.

3. The plan and timetable submitted by the owner or agent of the owner must be approved by the City. Any and all repairs required to affect the plan and timetable shall comply with all applicable City of Long Beach ordinances, codes and regulations. The owner shall be required to notify the City in writing of any changes in information supplied as part of Section 13.30.050, within ten (10) days of the change;

4. During the period of time that the vacant building plan and timetable are in effect, the owner shall be responsible for paying to the City the monthly monitoring fee as said fee is established, and from time to time amended, in accordance with a duly adopted resolution of the City Council;

5. In the event that the owner fails to comply with the vacant building plan and timetable, the City shall so notify the owner or authorized agent and shall thereafter institute appropriate administrative, civil or other legal action to secure compliance with this chapter.

E. Monitoring fee imposed. Any vacant or boarded building or structure as defined in this chapter shall be subject to a monthly monitoring

fee, to recover the City's regulatory costs to monitor the status of the vacant or boarded building. The monthly monitoring fee shall be set by resolution of the City Council. The monitoring fee shall be applicable until such time as the building or structure is no longer vacant or boarded, and shall likewise be applicable even when a vacant building plan and timetable is in effect. The monitoring fee shall be imposed upon the initial determination that the building is vacant. The fee shall thereafter be imposed in each thirty (30) day period following the imposition of the initial monitoring fee, to be billed to the owner on a quarterly basis until such time as the building or structure is no longer vacant or boarded.

F. Code enforcement response fee. In addition to the monthly monitoring fee imposed pursuant to this section, the City also establishes a further and separate enforcement response fee for actual costs incurred by the City to respond to or abate substandard or blighted conditions existing in or about the property upon which the boarded or vacant building or structure is located. Such costs shall include, but not be limited to, personnel costs involved with inspecting or responding to calls for service at the property, personnel costs involved in abating the substandard or blighted conditions existing on the property, costs of any materials or supplies either purchased or supplied by the City in connection with the abatement of any substandard or blighted condition in or about the property, costs of any contracted services, including the costs of materials, supplies, and labor provided by the City's contractor, if any, costs of procuring title or ownership information concerning or related to the property, as well as any other incidental enforcement costs incurred by the City in connection with remedying the substandard or blighted conditions existing on the property. The amount of the code enforcement response fee shall be established by resolution of the City Council.

G. Procedure. The vacant or boarded building monitoring fee and the code enforcement response fee, if any, shall be billed to the owner of the property and mailed to the owner's address as set forth on the last equalized assessment roll of the county assessor. Said fee or fees and associated administrative costs shall be charged to and become an indebtedness of the owner of the property.

H. If the monthly monitoring or code enforcement response fees or associated administrative costs and expenses are not paid within thirty (30) days after billing, then the fee or costs may be specially assessed against the property involved. If the fees or costs are specially assessed against the property, said assessment may be collected at the same time and in the same manner as ordinary real property taxes are collected and shall be subject to the same penalties and the same procedure and sale in case of delinquency as provided for ordinary real property taxes. All laws applicable to the levy, collection, and enforcement of real property taxes are applicable to the special assessment.

I. The City may also cause a notice of lien to be recorded against the property. The notice shall, at a minimum, identify the record owner or possessor of the property, set forth the last known address of the record owner or possessor, a description of the real property subject to the lien, and the amount of the fee or costs assessed against the property.

J. Hearing on charges. Within thirty (30) days from the date that the property owner is mailed a notice regarding the imposition of either monthly monitoring fees or code enforcement response fees or charges, the property owner may demand a hearing as to the reasonableness of the fees or charges imposed. Such demand shall be in writing and presented to the Director of Community Development for the City of Long Beach. Said demand shall describe the property involved, state the reasons for objecting, and include an address of the property owner for service of notice in connection with such hearing. Such demand shall be presented by the City to the Board of Examiners, Appeals and Condemnation for hearing at its next regularly scheduled meeting that is not less than ten (10) and not more than forty-five (45) days thereafter. The Director of Community Development shall give written notice of such hearing to the address furnished by the property owner

in the demand for an appeal hearing. At the time set for such hearing, the Board of Examiners, Appeals and Condemnation shall hear all evidence pertinent to the reasonableness of such fees and charges and shall either confirm or modify the charges. The decision of the Board of Examiners, Appeals and Condemnation shall be final. If the amount of the charges is uncontested by the property owner or as set by the Board of Examiners, Appeals and Condemnation on appeal, has not been paid within thirty (30) days after imposition or appeal hearing whichever is later, the payment thereof shall thereupon become delinquent and the amount so imposed or determined shall thereafter bear interest at the rate of twelve percent (12%) per annum until paid, as determined by the tax collector. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.21.050 Civil remedy.

A. Penalty.

1. Any owner of a vacant or boarded building which remains boarded in violation of Subsection 18.21.020.B or any owner of a building which remains vacant or boarded in violation of Subsection 18.21.020.A shall be liable for an administrative penalty in an amount not to exceed one thousand dollars ($1,000.00) per calendar year per building.

2. A second or subsequent administrative penalty imposed upon any owner pursuant to this section shall be in an amount not to exceed five thousand dollars ($5,000.00).

B. Procedure.

1. The administrative penalty shall be imposed by the Board of Examiners, Appeals and Condemnation upon the recommendation of the Building Official or designee and after the owner shall have been afforded a hearing before the Board of Examiners, Appeals and Condemnation. The hearing shall be conducted in accord with the provisions of Chapter 18.10 and Chapter 18.20. In setting the penalty, the Board shall consider the severity of the blighting conditions on the property and the owner's efforts, or lack thereof, to remedy the problem. The decision of the Board shall be final.

2. The administrative penalty shall be due and payable within thirty (30) days after the decision of the Board. If the penalty is not paid within forty-five (45) days after the decision of the Board, the penalty shall become a personal indebtedness or obligation of the property owner or it may be specially assessed against the property involved. If the property is specially assessed said assessment may be collected at the same time and in the same manner as ordinary real property taxes are collected and shall be subject to the same penalties and the same procedure and sale in case of delinquency as provided for ordinary real property taxes. All laws applicable to the levy, collection, and enforcement of real property taxes are applicable to the special assessment.

3. The City may also cause a notice of lien to be recorded against the property. The notice shall, at a minimum, identify the record owner or possessor of the property and set forth the last known address of the record owner or possessor, the date on which the penalty was imposed, a description of the real property subject to the lien, and the amount of the penalty or costs assessed against the property. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.24 FORECLOSURE REGISTRY PROGRAM

18.24.010 Purpose.

It is the intent of the City Council, through the adoption of this chapter, to establish a mechanism to protect residential neighborhoods from becoming blighted through the lack of adequate maintenance and security of vacant, abandoned or foreclosed upon residential real properties; to establish a vacant, abandoned or foreclosed upon residential property registration program and to set forth guidelines for the maintenance of vacant, aban-

doned or foreclosed upon residential real properties. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.24.020 Definitions.

Certain words and phrases in this chapter are defined, when used herein, as follows:

"Abandoned." Any residential building, structure or real property that is vacant or occupied by a person without a legal right of occupancy, and subject to a current Notice of Default and/or Notice of Trustee's Sale, pending Tax Assessor's Lien Sale and/or any residential real property conveyed via a foreclosure sale resulting in the acquisition of Title by an interested beneficiary of a deed of trust, and/or any residential real property conveyed via a deed in lieu of foreclosure sale.

"Accessible Property." Residential real property that is accessible to the public, either in general, or through an open and unsecured door, window, gate, fence, wall, or the like.

"Agreement." Any written instrument that transfers or conveys Title to residential real property from one owner to another after a sale, trade, transfer or exchange.

"Assignment of Rents." An instrument that transfers the beneficial interest under a deed of trust from one lender or entity to another.

"Beneficiary." A lender participating in a residential real property transaction that holds a secured interest in the residential real property in question identified in a deed of trust.

"Buyer." Any person, partnership, association, corporation, fiduciary or other legal entity that agrees to transfer anything of value in consideration for residential real property via an "agreement" as that term is defined in this Section.

"Dangerous Building." Any residential building or structure reasonably deemed by qualified City staff to represent a violation of any provision specified in Section 18.02.020.

"Days." Calendar days.

"Deed in Lieu of Foreclosure." A recorded instrument that transfers ownership of real property between parties to a particular deed of trust as follows - from the trustor (i.e., borrower), to the trustee upon consent of the beneficiary (i.e., lender).

"Deed of Trust." An instrument whereby an owner of residential real property, as trustor, transfers a secured interest in the real property in question to a third party trustee, said instrument relating to a loan issued in the context of a real property transaction. This definition applies to any and all subordinate deeds of trusts including, but not limited to a second trust deed or third trust deed.

"Default." The material breach of a legal or contractual duty arising from or relating to a deed of trust, such as a trustor's failure to make payment when due.

"Distressed." Any residential building, structure or real property that is subject to a current Notice of Default and/or Notice of Trustee's Sale, pending Tax Assessors Lien Sale and/or any residential real property conveyed via a foreclosure sale resulting in the acquisition of Title by an interested beneficiary of a deed of trust, and/or any residential real property conveyed via a deed in lieu of foreclosure/sale, regardless of vacancy or occupancy by a person with no legal right of occupancy.

"Enforcement Official." The City Manager, the Director of Community Development, and/or any employee or agency of the City of Long Beach designated and/or charged with enforcing the Long Beach Municipal Code, including, but not limited to, applicable codes adopted by reference therein.

"Evidence of Vacancy." Any residential real property condition that independently, or in the context of the totality of circumstances relevant to that real property, would lead a reasonable enforcement official to believe that a property is vacant or occupied by a person without a legal right of occupancy. Such real property conditions include, but are not limited to: overgrown or dead vegetation; accumulation of newspapers, circulars, flyers or mail; past due utility notices or disconnected utilities; accumulation of trash, junk or debris; the absence of window coverings such as curtains, blinds or shutters; the absence of furnishings or personal items consistent with residential

habitation; and/or statements by neighbors, passersby, delivery agents, or government employees that the property is vacant.

"Foreclosure." The process by which real property subject to a deed of trust is sold to satisfy the debt of a defaulting trustor (i.e., borrower).

"Local." Within forty (40) road or driving miles distance from the subject building, structure or real property in question.

"Neighborhood Standard." The condition of residential real property that prevails in and through the neighborhood where an abandoned building, structure or real property is located. When determining the neighborhood standard no abandoned or distressed building, structure or real property shall be considered.

"Notice of Default." A recorded instrument that reflects and provides notice that a default has taken place with respect to a deed of trust, and that a beneficiary intends to proceed with a trustee's sale.

"Out of Area." In excess of forty (40) road or driving miles of the subject property.

"Owner." Any person, partnership, association, corporation, fiduciary or other legal entity having recorded Title to the property as reflected in the official records of the County Recorder of Los Angeles County.

"Owner of Record." The person holding recorded Title to the residential real property in question at any point in time when Official Records are produced by the Los Angeles County Registrar/Recorder's office.

"Property." Any unimproved or improved residential real property, or portion thereof, situated in the City of Long Beach, including buildings or structures located on said real property, regardless of condition.

"Residential Building." Any improved real property, or portion thereof, designed or permitted to be used for dwelling purposes, including buildings and structures located on such improved real property. This includes any real property being offered under any circumstances for sale, trade, transfer, or exchange as "residential," whether or not said property is legally permitted and zoned for such use.

"Securing." Such measures as may be directed by a code enforcement official that assist in rendering real property inaccessible to unauthorized persons, including but not limited to repairing fences and walls, chaining/padlocking gates, the repairing or boarding of doors, windows or other such openings.

"Trustee." Any person, partnership, association, corporation, fiduciary or other legal entity holding a deed of trust securing an interest in real property.

"Trustor." Any owner/borrower identified in a deed of trust, who transfers an interest in real property to a trustee as security for payment of a debt by that owner/trustor.

"Vacant." Any building, structure or real property that is unoccupied or occupied by a person without a legal right of occupancy. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.24.030 Registration.

A. Not later than ten (10) days after recording a notice of default on any residential property located in the City of Long Beach which is subject to a deed of trust, the beneficiary, or its trustee, shall register the property with the Community Development Department of the City of Long Beach on forms provided by the City.

B. The registration pursuant to this Section shall be renewed annually until such time as:

1. The foreclosure process is complete or the notice of default has been rescinded or withdrawn;

2. The Trustor has surrendered the property to the beneficiary as evidenced by either a letter from the trustor addressed to the beneficiary confirming such surrender, or by the trustor's delivery of the keys to the property to the beneficiary or its agent;

3. The beneficiary has obtained possession of the property under Section 1161 or 1161a or 1161b

of the Code of Civil Procedure, as applicable, following completion of the foreclosure proceeding.

If a subsequent notice of default is issued for the same property after being withdrawn or rescinded, the registration requirement set forth in this Section shall be reinstated.

C. The registration pursuant to this Section shall contain the identity of the beneficiary and trustee, the direct mailing address of the beneficiary and trustee and, in the case of a corporate or out of area beneficiary or trustee, the local property management company, if any, responsible for the security, maintenance and marketing of the property in question.

D. An annual registration fee as set by the City Council by resolution shall accompany the submission of each registration form. The fee and registration shall be valid for one (1) year from the date of registration. Registration fees will not be prorated. Subsequent registrations and fees are due January 1st of each year and must be received no later than January 15th of the year due.

E. Any person, partnership, association, corporation, fiduciary or other legal entity that has registered a property under this chapter must make a written report to the City of Long Beach Community Development Department of any change of information contained in the registration form within ten (10) days of the change.

F. The duties/obligations specified in this chapter shall be joint and several among and between all trustees and beneficiaries and their respective agents. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.24.035 Penalty/fine for failure to timely register a property with the City.

A. Notwithstanding any other provision of this chapter or Chapter 9.65 to the contrary, the City may, after fifteen (15) days' written notice to the beneficiary or its trustee, impose a fine/penalty on a beneficiary or its trustee for its failure to timely register a property with the City under this chapter. The amount of such fines and/or penalties shall be established by the City Council by resolution.

B. The imposition of a fine/penalty for failure to register a property shall be in accordance with the provisions and procedures set forth in Chapter 9.65 of the Long Beach Municipal Code: "Administrative Citations and Penalties."

C. Any failure to pay fines or penalties imposed pursuant to this chapter may be remedied by the City in accordance with Section 9.65.140, or any successor section thereto. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.24.040 Maintenance required.

It is declared a public nuisance for any person, partnership, association, corporation, fiduciary or other legal entity, that owns, leases, occupies, controls or manages any property subject to the registration requirement contained in Section 18.24.030, to cause, permit, or maintain any property condition contrary to any provision of this chapter. Consequently, the following maintenance requirements as to any property subject to the registration requirement contained in Section 18.24.030 are adopted:

A. Any property subject to this chapter must comply with the requirements of the Long Beach Municipal Code Chapter 18.20 entitled "Unsafe Buildings or Structures."

B. In addition, the property shall be kept free of weeds, dry brush, dead vegetation, trash, junk, debris, building materials, any accumulation of newspaper, circular, flyers, notices (except those required by federal, State or local law), discarded personal items including, but not limited to, furniture, clothing, large and small appliances, printed material or any other items that give the appearance that the property is abandoned.

C. The property shall be maintained free of graffiti, tagging or similar marking. Any removal or painting over of graffiti shall be with an exterior grade paint that matches the color of the exterior of the structure.

D. Visible front and side yards shall be landscaped and maintained to the neighborhood standard.

E. Landscaping includes, but is not limited to, grass, ground covers, bushes, shrubs, hedges or similar plantings, decorative rock or bark or artificial turf/sod designed specifically for residential installation.

F. Landscaping does not include weeds, gravel, broken concrete, asphalt, plastic sheeting, mulch, indoor-outdoor carpet or any other similar material.

G. Pools and spas shall be kept in working order so that water remains clear and free of pollutants and debris, or alternatively shall be drained and kept dry. In either case, properties with pools and/or spas must comply with the minimum security fencing requirements of the State of California.

H. Adherence to this section does not relieve the beneficiary/trustee or property owner of obligations set forth in any portion of the Long Beach Municipal Code or in any Covenants, Conditions and Restrictions and/or Home Owners Association rules and regulations which may apply to the property.

The sole exception to these maintenance requirements shall, within the sole reasonable discretion of the Director of Community Development or designee, apply to property subject to the registration requirement contained in Section 18.24.030 that is under construction and/or repair, not less than three (3) business days per week, undertaken in compliance with all applicable laws, including, but not limited to, City permitting requirements. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.24.050 Security requirements.

A. Properties subject to this chapter shall be maintained in a secure manner so as not to be accessible to unauthorized persons.

B. Secure manner includes, but is not limited to, closing and locking of windows, doors (walk-through, sliding, and garage), gates and any other opening that may allow access to the interior of the property and/or structure(s). In the case of broken windows, "securing" means reglazing or boarding the window.

C. If the property is owned by a corporation and/or out of area beneficiary/trustee/owner, a local property management company shall be contracted to perform weekly inspections to verify that the requirements of this Section, and any other applicable laws, are being fulfilled.

D. The property shall be posted with the name and twenty-four (24) hour contact phone number of the local property management company. The posting shall be 8-½" x 11" in size, shall be of a font that is legible from a distance of twenty (20) feet, and shall contain the following verbiage: "THIS PROPERTY MANAGED BY _____," and "TO REPORT PROBLEMS OR CONCERNS CALL (name and phone number)."

E. The posting shall be placed on the interior of a window facing the street to the front of the property so it is visible from the street, or secured to the exterior of the building/structure facing the street on the front of the property so it is visible from the street. If no such area exists, the posting shall be on a stake of sufficient size to support the posting, in a location that is visible from the street to the front of the property, and to the extent possible, not readily accessible to potential vandalism. Exterior posting must be constructed of, and printed with weather resistant materials.

F. The local property management company shall inspect the property on a weekly basis to determine if the property is in compliance with the requirement of this chapter. If the property management company determines the property is not in compliance, it is the company's responsibility to bring the property into compliance.

G. The duties/obligations specified in this chapter shall be joint and several among and between all trustees and beneficiaries and their respective agents. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.24.055 Special provisions where property is encumbered with the security interests of multiple beneficiaries.

A. In the event that a property is encumbered by the security interests of more than one (1) beneficiary at the time when a notice of default is recorded, the beneficiary who causes a notice of default for its security interest to be recorded shall be responsible for registering the property with the City as provided in Section 18.24.030.

B. Upon the recordation of a notice of default on a property by any beneficiary, regardless of the security lien interest priority of such beneficiary in the property in relation to the priority of the security interests of the other beneficiaries in the same property, the City, in its discretion may elect to enforce the provisions of this chapter against one or more beneficiaries who have not separately recorded a notice of default against the property. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.24.060 Additional authority.

In addition to the enforcement remedies established in this chapter, the City shall have the authority to require the beneficiary, trustee, owner or owner of record of any property affected by this chapter, to implement additional maintenance and/or security measures including, but not limited to, securing any and all doors, windows or other openings, installing additional security lighting, increasing on-site inspection frequency, employment of an on-site security guard and/or other measures as may be reasonably required to secure and reduce the visual decline of the property. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.24.070 Enforcement.

A. Any violation of this chapter shall be treated as a strict liability offense; a violation shall be deemed to have occurred regardless of a violator's intent. Any person, firm and/or corporation that violates any portion of this chapter including, but not limited to, the registration requirements set forth in Section 18.24.030, the maintenance requirements set forth in Section 18.24.040, and the security requirements set forth in Section 18.24.050 may be subject to administrative enforcement under Chapter 9.65 of the Long Beach Municipal Code. Administrative penalties imposed pursuant to this chapter shall not exceed one hundred thousand dollars ($100,000.00) per property.

B. Any person, partnership, association, corporation, fiduciary or other legal entity, that owns, leases, occupies, controls or manages any property subject to the registration requirement contained in Section 18.24.030, and causes, permits, or maintains a violation of this chapter as to that property, shall be guilty of a misdemeanor, and upon conviction thereof, shall be punished as provided in Chapter 1.32 of the Long Beach Municipal Code.

C. This chapter is intended to be cumulative to, and not in place of, other rights and remedies available to the City pursuant to the Long Beach Municipal Code. The City Attorney or a duly authorized enforcement official may pursue any other right or remedy permitted by the Long Beach Municipal Code, including, but not limited to, commencement of any civil action, or administrative action to abate the condition of a property as a public nuisance. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.24.080 Appeals.

If an administrative citation has been issued pursuant to the provisions of Chapter 9.65 of the Long Beach Municipal Code, then the procedures set forth in Chapter 9.65 shall govern. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.24.090 Alternative monetary penalties.

A. This section is intended to carry out the provisions of Section 2929.3 of the California Civil Code. Nothing in this section shall be inter-

preted or implemented in a manner that is inconsistent with State law. If there is a conflict between the provisions of State law and this section, State law shall control.

B. The City may elect to impose monetary penalties on a legal owner, pursuant to Section 2929.3 of the California Civil Code, if that legal owner fails to maintain vacant residential property that is either purchased at a foreclosure sale or acquired through foreclosure under a mortgage or deed of trust.

For purposes of this section, "fails to maintain" means failing to care for the exterior of the property, including, but not limited to, permitting excess foliage growth that diminishes the value of surrounding properties, failing to take action to prevent trespassers, squatters or other unauthorized persons from remaining on the property, or failing to take action to prevent mosquito larvae from growing in standing water, or other conditions that create a public nuisance.

C. The City may impose a fine of up to one thousand dollars ($1,000.00) per day for each day that the legal owner fails to maintain the property as required by this section, commencing on the day following the expiration of the period to remedy the violation, as established by the City in Subsection D.

1. In determining the amount of the fine, the City shall take into consideration any timely and good faith efforts by the legal owner to remedy the violation.

2. Fines and penalties collected pursuant to this section shall be directed toward local nuisance abatement programs.

3. Pursuant to Section 2929.3 of the California Civil Code, the City may not impose fines on a legal owner under both this Section and any other local ordinance. However, Section 2929.3 of the California Civil Code shall not preempt any local ordinance.

4. Notwithstanding Subsection C.3, the rights and remedies provided in this section are cumulative and in addition to any other rights and remedies provided by law.

D. If the City imposes a fine pursuant to this section, the City shall give notice of the alleged violation to the legal owner. The notice shall include a description of the conditions that gave rise to the alleged violation, and state the City's intent to assess a civil fine if action to correct the violation is not commenced within a period of not less than fourteen (14) days and completed within a period of not less than thirty (30) days.

1. The notice shall be mailed to the address provided in the deed or other instrument as specified in subdivision (a) of Section 27321.5 of the California Government Code, or, if none, to the return address provided on the deed or other instrument.

2. The City may provide less than thirty (30) days' notice to remedy a condition, if the City determines that a specific condition of the property threatens public health or safety and the notice of violation states that there is a threat to public health or safety and lists the required time to correct the violation. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.24.100 Severability.

If any section or provision of this chapter is for any reason held to be invalid or unconstitutional by any court of competent jurisdiction, or contravened by reason of any preemptive legislation, the remaining sections and/or provisions of this chapter shall remain valid. The City Council hereby declares that it would have adopted this chapter, and each section or provision thereof, regardless of the fact that any one or more section(s) or provision(s) may be declared invalid or unconstitutional or contravened via legislation. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.25 TENANT RELOCATION AND CODE ENFORCEMENT

18.25.010 Purpose.

The primary purpose of this chapter is to provide for owner-paid relocation payments and assistance to residential tenants who are displaced due to the City of Long Beach's code enforcement activities. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.25.020 Findings.

This chapter is enacted in recognition of the following facts and for the following reasons:

A. Some residential rental units in the City have been found to have severe code violations that threaten the life and safety of occupants. In some circumstances, the hazardous living conditions have required that tenants vacate the structure to allow for extensive repairs or demolition.

B. These code violations often are caused by negligence, deferred maintenance, or the illegal use of certain structures as dwelling units. These code violations typically constitute a violation of the owner's legal responsibility to the tenants. For example, they may be a breach of the owner's implied warranty of habitability, and could constitute constructive eviction of the tenants from their residence.

C. The difficulty of finding affordable replacement housing and the burden of incurring moving-related expenses creates a financial hardship for tenants, particularly those who are low income. Financial hardship arises because the tenants generally need a large sum of money to relocate, often including first month's rent, security deposits, moving and storage expenses, and utility deposits. Low income tenants are generally unable to obtain the sums needed to relocate and, as a result, are at an increased risk of becoming homeless.

D. Relocation assistance is necessary to ensure that displaced tenants secure safe, sanitary and decent replacement housing in a timely manner. The level of payments provided for in this chapter are reflective of actual relocation costs likely to be incurred by displaced households. This is consistent with and in furtherance of the housing element of the City's General Plan.

E. In the past, affected tenants have turned to local, State and national governmental entities for financial assistance in obtaining replacement housing. However, the resources available to such entities to assist displaced tenants have become increasingly scarce.

F. It is fair for property owners who fail to properly maintain residential rental properties, or who create illegal residential units, to bear responsibility for the hardship their actions or inaction create for tenants. Relocation of tenants is a necessary element of code enforcement that should be the responsibility of the property owner, and the City should be reimbursed by the responsible owner for all costs which the City incurs in the code enforcement process.

G. Delayed payment of relocation assistance often imposes extreme hardship upon tenants who must obtain the large sums necessary to relocate. Delayed payments may also require the City to expend funds to provide tenants with financial assistance for relocation. Any requirement to pay relocation assistance should contain disincentives for delayed payment in the form of appropriate penalties.

H. It is the intent of this chapter to ensure that adequate relocation assistance is available to tenants who face displacement through no fault of their own. It is also the intent to provide assistance in a manner that is as equitable as possible to the tenant, the property owner, and the public at large. The requirement for owners to pay relocation costs under this chapter will facilitate the correction of code violations and will likewise protect the public health, safety, and general welfare of the residents of the City.

I. This chapter is in the public interest for the reasons stated above. Additionally, it furthers the public interest by helping to remove a potential impediment to code enforcement. The City finds that this chapter also is fair, in that it imposes

reasonable costs and penalties on owners who operate contrary to the code enforcement regulations of the City. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.25.030 Definitions.

For purposes of this chapter, certain terms, phrases, words and their derivatives shall be construed as specified in this Section.

"City Manager" means the City Manager of the City of Long Beach, or his or her designee.

"Code enforcement activity" means activity initiated by the City to determine the condition of a building or structure and which requires the property owner to make necessary repairs, to vacate the building, to demolish the structure or structures, or to take other action to bring the property into compliance with applicable State or local zoning, building, fire, health or housing standards regulations.

"Comparable replacement dwelling" shall have the same meaning as that specified in Section 7260 et seq. of the California Government Code, or any successor statute thereto.

"Day" means calendar day.

"Department of Community Development" means the Department of Community Development of the City of Long Beach.

"Displacement" means the removal of the tenant household from the property due to the issuance of an order to vacate pursuant to Section 18.20.140.

"Long Beach Municipal Code" means all ordinances, rules, and regulations of the City of Long Beach regulating maintenance, sanitation, ventilation, light, location, use or occupancy of residential buildings.

"Notice of intent to order building vacated" means an official notice issued by the City in accordance with Section 18.20.020.

"Order to vacate" means an official notice issued by the City in accordance with Section 18.20.110.

"Property owner" means a person, corporation, or any other entity holding fee title to the subject real property.

"Relocation" means the required vacating of a residential rental unit or room by a tenant or household to further the City's code enforcement activity.

"Rental unit" means a dwelling space containing a separate bathroom, kitchen, and living area, including a single-family dwelling or unit in a multifamily or multipurpose dwelling; or, it means a unit in a condominium or cooperative housing project, which is hired, rented, or leased to a tenant or household within the meaning of Section 1940 of the California Civil Code.

"Room" means an unsubdivided portion of the interior of a building including, but not limited to, illegally converted garage spaces, which are used for the purpose of sleeping, and which are occupied by a tenant for at least thirty (30) consecutive days as determined by the Department of Community Development.

"Substandard building" means and includes every building or other structure as defined in Section 18.02.020. For the purposes of this chapter, substandard building or structure shall mean only those buildings that contain rental units or rooms as defined herein.

"Tenant household" means one (1) or more individuals who: (1) have a landlord-tenant relationship with the property owner, by renting or leasing a rental unit or room in a substandard building; and (2) can demonstrate a landlord-tenant relationship by leases, cancelled rent checks, rent receipts, utility bills, phone bills, or any other evidence of renting or leasing the premises as determined by the Department of Community Development. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.25.040 Eligibility.

A tenant household shall be eligible for consideration for relocation assistance under this chapter when tenants in the household are displaced

from their rental units or rooms because of the issuance of a "notice of intent to order building vacated" or an "order to vacate" in accordance with Sections 18.20.120 or 18.20.140, or an order of immediate vacation when the structure or premises has been declared "dangerous" in accordance with Section 18.20.210, or their respective successor sections. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.25.050 Order to vacate.

As part of the City's code enforcement activity, the Building Official will decide whether repairs or other actions to abate substandard buildings can be reasonably accomplished without relocation of the tenant or household.

If relocation is necessary to abate a substandard building or condition, the Building Official shall issue and serve an "order to vacate" in accordance with Sections 18.20.140 through 18.20.170. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.25.060 Notification of tenants and owners.

A. When the Building Official issues a notice of substandard building, notice of intent to order building vacated or an order to vacate in accordance with Sections 18.20.120 or 18.20.140, the Building Official shall notify the Department of Community Development of the issuance of the orders and the Department of Community Development shall inform the tenant households in writing of the procedure to apply for relocation assistance, what the tenant household's rights are, and who to contact with questions regarding relocation assistance. The Department of Community Development shall also inform the tenant household that the household may request payment of relocation assistance from the City in accordance with Section 18.25.090, if the owner fails, neglects, or refuses to make the required relocation payments in accordance with this chapter. Relocation assistance information shall be provided to tenant households in English, Spanish, Korean and Khmer to ensure the information is accessible to limited English proficiency persons.

B. The Department of Community Development shall also inform the property owner that failure to make required relocation payments within ten (10) days of notice may result in the City making payments on behalf of the owner, and that failure to reimburse the City for all payments made and other costs and penalties incurred shall result in a lien being placed on the owner's property.

C. The issuance of an order to vacate shall not relieve the property owner of any legal obligations, including any obligation to provide any notice imposed by any provisions of federal, State, or local laws or ordinances.

D. At the time a notice of substandard building is issued in accordance with Section 18.20.120, the City shall also notify the property owner of the obligation to pay tenant relocation if required repairs are not made within the time specified in the notice of substandard building. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.25.070 Issuance of permits.

If an order to vacate is issued, the City shall require the property owner or the owner's authorized agent to obtain building permits to convert, repair, rehabilitate or demolish the dwelling units that are in violation of the building code in the Long Beach Municipal Code. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.25.080 Payment of relocation benefits.

A. The relocation benefits required by this chapter shall be paid by the owner or designated agent to the tenant household in the form of a certified check, cashier's check, or money order, within ten (10) days after the order to vacate is issued and served in accordance with Section 18.20.160. Proof of such payment shall be made to the Department of Community Development.

The tenant household shall not be required by the property owner to vacate the premises until relocation payment is made to the tenant and proof thereof is made to the Department of Community Development, unless the building, fire or health official determines that the building or structure is a dangerous building within the meaning of Section 18.02.020 or other applicable codes. The property owner shall also be responsible for reimbursing the City for any relocation payments the City makes or costs the City incurs under this chapter.

B. If the building, fire or health official determines that the unit or room is dangerous and must be vacated in less than ten (10) days, then the owner shall make required relocation payments to the tenant household in the form of a certified check, cashier's check, or money order, within two (2) business days after the order to vacate is issued and served in accordance with Section 18.20.160. Proof of the payment shall be made to the Department of Community Development.

C. No relocation benefits pursuant to this chapter shall be payable to any tenant who has caused or substantially contributed to the condition or conditions giving rise to the order to vacate, as determined by the Department of Community Development, nor shall relocation benefits be payable to a tenant if any guest or invitee of the tenant has caused or substantially contributed to the condition giving rise to the order to vacate, as determined by the Department of Community Development. The Department of Community Development shall make the determination whether a tenant, tenant's guest, or invitee, caused or substantially contributed to the condition giving rise to the order to vacate. Service of a three (3) day notice, notice to terminate or unlawful detainer complaint shall not in and of itself render a tenant household ineligible for relocation benefits under this chapter.

D. An owner shall not be liable for relocation benefits if the Building Official determines that the building or structure became substandard or dangerous as the result of a fire, flood, earthquake, or other act of God beyond the control of the owner and the owner did not cause or contribute to the condition.

E. Delay in Payment of Relocation Assistance by Owner. If the owner fails, neglects, or refuses to pay relocation assistance to a displaced tenant, or a tenant subject to displacement, in accordance with this chapter, the City shall also be entitled to recover from the owner an additional amount equal to the sum of one-half (½) the amount so paid or due, but not to exceed ten thousand dollars ($10,000.00) cumulative per property, as a penalty for failure to make timely payment to the displaced tenant, plus the City's actual costs, including direct and indirect costs of administering the provisions of assistance to the displaced tenant or tenants. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.25.090 Relocation eligibility and assistance by City.

A. The City may assist tenants displaced or to be displaced due to code enforcement activity subject to this chapter by providing information, referral, monitoring, or other advisory assistance. Any tenant household interested in City assistance should contact the Department of Community Development for relocation information. Failure by tenant households to contact the Department of Community Development shall not relieve property owners from their responsibility to provide relocation assistance.

B. Tenant households shall submit requests for relocation assistance to the Department of Community Development in order to establish the existence of a landlord-tenant relationship. The Department of Community Development shall make a determination as to whether a tenant household is eligible for relocation assistance within three (3) business days of receipt of a completed request for relocation assistance. If the Building Official has determined that the tenant household must vacate its unit or room in less than ten (10) days, the Department of Community Development shall make a determination as to whether the tenant household is eligible for relocation assistance within two (2) business days of receiving a

completed request for relocation assistance. Once an eligibility determination has been made, the Department of Community Development shall immediately provide written notice in English, Spanish, Korean and Khmer to the tenant household, the owner, and the Building Official regarding the eligibility determination and any relocation assistance owed.

C. If the owner fails, neglects or refuses to pay relocation assistance to a displaced tenant or a tenant subject to displacement, the City may advance all or a portion of the required payments to the tenant. If the City advances relocation assistance, or a portion thereof, the City shall be entitled to recover from the owner any amount so paid to a tenant pursuant to this Section, and the Department of Community Development shall notify the owner of the City's advancement of payment.

For the City to consider such payments, the tenant household must make a request to the Department of Community Development after the owner fails, neglects or refuses to make such required payments.

D. Any amount paid by the City on behalf of the owner and any applicable penalties and actual costs including incidental enforcement costs shall become delinquent thirty (30) days after notice by the City and may also be placed as a lien against the property of the owner by recording the lien in the office of the County Recorder for Los Angeles County. Any delinquent payments will accrue interest at the rate of twelve percent (12%) per year until paid.

E. The failure of the owner to pay the amounts to the City set forth in this chapter within the time specified constitutes a debt to the City. To enforce that debt, the City Manager or his or her designee may take any and all appropriate legal action, impose a lien as set forth above, or pursue any other legal remedy to collect such money. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.25.100 Immediate vacation.

If the Building Official determines that the building is dangerous and immediate vacation is required, immediate City payment of relocation benefits can be made to tenant households as soon as the tenant household is determined eligible by the Department of Community Development. The tenant household must sign a request for relocation assistance from the Department of Community Development in order to receive immediate relocation payments. Those payments and other related costs shall be a charge against the property owner, and the owner shall reimburse the City for these relocation costs. Additionally, those costs may be collected, if need be, as outlined in Section 18.25.090. The payment of relocation assistance by the City shall be solely predicated upon the availability of City funds. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.25.110 Amount of relocation payments.

Each eligible tenant household shall receive monetary relocation assistance in the amount of three thousand three hundred sixty-six dollars ($3,366.00). Each eligible household with a disabled person displaced under this chapter shall also be entitled to reimbursement for structural modifications to the household paid for by the tenant household at the vacated premises up to a maximum value of an additional two thousand five hundred dollars ($2,500.00). The Department of Community Development shall increase both of these amounts on a percentage basis as determined by the change in the Consumer Price Index between January 1, 2005, and January 1 of the year in which the application for relocation assistance is filed with the Department of Community Development. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.25.120 Evictions to avoid payment of relocation assistance.

Owners shall not evict tenants to avoid their responsibility to pay relocation assistance to tenants under this chapter. Tenants receiving notices

to terminate or quit from the property owner or owner's agent within ninety (90) days of a notice of substandard building shall be presumed eligible and entitled to collect relocation assistance pursuant to this chapter. However, this presumption may be rebutted upon a showing by the owner that the tenant has caused or substantially contributed to the condition or conditions giving rise to the order to vacate. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.25.130 Move-back option.

A displaced tenant household shall have the option of moving back into the rental unit or room from which it was required to move provided that such rental room or unit was a legally permitted rental room or unit at the time of displacement. If this is not possible, the displaced tenant household shall have the option of moving into an equivalent unit or room in the same building, as soon as it is ready for occupancy. If a tenant household wishes to avail itself of this option, it must inform the owner in writing of its current address at all times during the period of displacement.

The property owner shall notify a displaced tenant household at least thirty (30) days in advance by first class mail of the availability of the unit or room including monthly rent and date of availability. The notice shall inform the tenant household that it has ten (10) days to notify property owner of their intent to move back into the property. Within ten (10) days of receipt of notice of availability of the unit or room, a tenant household wishing to move back shall so notify the owner in writing.

If a tenant household wishing to move back into the unit or room is required to pay a security deposit, the household must be permitted sufficient time to do so. In no event may that time exceed sixty (60) days. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.25.140 Certificate of occupancy.

The City shall not give the owner a certificate of occupancy until such time as the owner provides the Department of Community Development and Building Official with written proof that he or she has properly notified all displaced tenant households in writing of their right to return to their unit or room, or an equivalent unit or room in the same building if this is not possible, for the same rent they were paying prior to displacement for a minimum of six (6) months.

The City shall not issue the owner a certificate of occupancy until such time as the Building Official has determined that all necessary repairs have been made to the building. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.25.150 Appeals.

Any property owner or tenant household may contest a decision by the Department of Community Development or his or her representative regarding eligibility, relocation payment amounts, or any other determination or claim made under this chapter. To do so, the party shall file a written request for an appeal with the Director of Community Development within ten (10) days of the decision, determination or claim. The Director or his or her designee shall hold a hearing at his or her earliest opportunity and in no event more than fourteen (14) days after the Director receives notice of the appeal. All notices from the Director shall be sent to both the property owner and all tenant households affected by the appeal. The determination of the Director shall be final. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.25.160 Penalty.

Any person violating any provision or failing to comply with any of the requirements of this chapter shall be guilty of a misdemeanor or infraction, as determined by the City Prosecutor. In addition to any penalty imposed for a violation of

this chapter, any person violating or causing or permitting the violation of this chapter shall reimburse the City for any administrative costs or expenses the City incurs in administering this chapter. Those amounts may include any provisional relocation assistance provided to tenants, such as temporary housing, moving expenses, relocation payments, public health assistance, transportation, storage or other related services.

The remedies and penalties provided for in this section and chapter shall be in addition to any other available remedies and penalties provided for by the Long Beach Municipal Code or other law. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.25.170 Private right of action.

Tenant households subject to displacement and/or their legal representatives shall have standing as third party beneficiaries to file an action against the owner for injunctive relief and/or actual damages pursuant to this chapter.

Nothing herein shall be deemed to interfere with the right of a property owner to file an action against a tenant or nontenant third party for the damage done to the owner's property. Nothing herein is intended to limit the damages recoverable by any party through a private action. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.25.180 Application to heirs.

The provisions of this chapter shall apply to all property owners and their heirs, assigns and successors in interest. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.25.190 Relationship to other laws.

Nothing in this chapter is intended to prevent displaced households from securing any relocation assistance and/or benefits to which they may be entitled under any other local, State or federal law. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.25.200 Penalty fund.

Any and all penalties levied and collected by the City pursuant to this chapter shall be placed in a revolving fund and utilized at the sole discretion of the City to advance relocation assistance to tenants or households displaced as a result of code enforcement activities. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.25.210 Severability.

If any provision of this chapter is held to be unconstitutional or otherwise invalid by any court of competent jurisdiction, the remaining provisions of this chapter shall not be invalidated. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.29 MAINTENANCE OF VACANT LOTS

18.29.060 Purpose.

Vacant lots are a major cause and source of visual and other blight in the City, especially when the owner or person in control of a vacant lot fails to maintain and manage the lot to ensure it does not become a liability to the neighborhood. Failure to maintain vacant lots can result in reduced property values; vandalism, graffiti, dumping, and accumulation of litter and other debris. It is the purpose and intent of the City, through the adoption of this Chapter, to regulate vacant lots in the City as a mechanism to protect neighborhoods and commercial areas from becoming blighted due to the lack of adequate maintenance and security of vacant lots and to establish minimum standards of accountability on the owners or other responsible parties of vacant lots in order to pro-

tect the health, welfare and safety of the community. (ORD-26-0004 § 26, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-17-0025 § 1, 2017)

18.29.070 Definitions.

"Director" shall mean the Director of Community Development or designee.

"Responsible person" shall mean the owner of the property as shown on the last equalized tax assessment roll maintained in the Los Angeles County Assessor's office; or any person, entity, or person acting on behalf of an entity who otherwise exercises control of the property.

"Vacant Lot." For the purpose of this Chapter, a vacant lot shall mean any parcel that does not have a permitted structure. A vacant lot shall not include any lot being lawfully utilized for small scale agricultural purposes in accordance with the provisions of Chapter 8.77 of this Code and/or other approved temporary uses by the City. (ORD-26-0004 § 26, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-17-0025 § 1, 2017)

18.29.080 General requirements for maintenance of vacant properties, lots, or parcels.

A. Responsible person shall:

a. Maintain vacant lots and any perimeter fencing free of weeds, dry brush, dead vegetation; trash, garbage; junk; debris; building materials; vehicles, including but not limited to cars, boats, campers, motorcycles, and go-karts; newspapers, circulars, flyers, and banners; discarded personal items, including, but not limited to, furniture, clothing, large and small appliances; and graffiti, tagging or similar markings.

b. Ensure vacant lots are secured from unauthorized entry at all times.

c. Inspect the property monthly or take other reasonable steps to ensure compliance with this section.

d. Enclose and secure the vacant lot with perimeter fencing sufficient to prevent unauthorized access to the property.

(i) The fencing shall:

1) Consist of wrought iron, chain link or other materials approved by the Building Official;

2) Be at least six (6) feet in height; and

3) Allows visibility into the vacant lot from ground level.

(ii) The Building Official may waive the fence height limits and materials restrictions of the Zoning Regulations as needed to meet this requirement.

e. Ensure fencing includes a secured gate to allow access to the vacant lot for emergency services.

f. Ensure fencing and gates are maintained in good, operable condition at all times by the property owner such that the purposes of this Chapter are accomplished and to avoid the appearance of blight.

g. Paint the property address of the vacant lot in a visible location on the curb face in accordance with the provisions of Chapter 14.36. If no curb is present, property address signage must be posted in a manner consistent with the California Residential Code (CRC) and the California Fire Code (CFC).

h. Within thirty (30) days after the lot becomes vacant or within thirty (30) days after the effective date of this Chapter, whichever is later, complete a vacant lot registration application on the form made available by the City and register the vacant lot with the Department of Community Development.

(i) Alternatively, upon discovery by the Building Official that a lot is vacant, the City may register the lot with the Department of Community Development. In this event, the City will provide notice by mail to the owner as shown on the last equalized tax assessment roll maintained in the Los Angeles County Assessor's office.

i. Enroll the vacant lot into the Long Beach Police Department's (LBPD) No Trespassing Program 602(o)(PC). The Request for Service form shall be completed, signed and notarized. Autho-

rized signs must be purchased from designated locations and prominently posted on the property.

B. The Director of Community Development or designee shall have the authority and discretion to make specific fee exemptions in a case where the property owner has agreed to allow the property to be used and operated for a specific community serving use, such as the use of pocket parks or approved temporary activating uses as defined in Section 21.53.115 of this Code.

C. At the time the vacant lot is registered, the Responsible Person shall pay the Vacant Lot Monitoring fee as established by resolution of the City. Said fee shall be billed annually but will be prorated based upon the month of the year that the registration occurs. The Vacant Lot Monitoring fee will be billed by the City on an annual basis until the lot is no longer a Vacant Lot.

a. If the annual monitoring fee is not paid when due then:

(i) The City may cause a notice of lien to be recorded against the property. The notice shall, at a minimum, identify the record owner or possessor of the property, set forth the last known address of the record owner or possessor, a description of the real property subject to the lien, and the amount of the fee or costs assessed against the property.

(ii) The fee may be specially assessed against the property involved. All laws applicable to the levy, collection and enforcement of real property taxes are applicable to the special assessment.

D. Hearing on charges. Within thirty (30) days from the date that the Responsible Person is mailed a notice regarding the imposition of the Vacant Lot Monitoring fee, the property owner may demand a hearing.

a. Such demand shall be in writing and presented to the Director of Community Development for the City of Long Beach and include any required fee for appeal set forth in the schedule of fees and charges established by City Council resolution.

b. Said demand shall describe the property involved, state the basis that the Vacant Lot Monitoring fee should not be assessed, and include an address of the Responsible Person for service of notice in connection with such hearing.

c. Such demand shall be presented by the City to the Board of Examiners, Appeals and Condemnation (BEAC) for hearing at its next regularly scheduled meeting that is not less than thirty (30) days from the date of the demand.

d. The Director of Community Development shall give notice by mail of such hearing to the Responsible Person at the address furnished in the demand for an appeal hearing.

e. At the time set for such hearing, the Board of Examiners, Appeals and Condemnation (BEAC) shall hear all evidence pertinent to the applicability of the fee and shall either confirm or deny the imposition of the fee. The decision of the Board of Examiners, Appeals and Condemnation (BEAC) shall be final.

f. If the appeal is granted the appeal fee shall be returned.

g. If the appeal is denied, the payment is due within thirty (30) days. (ORD-26-0004 § 26, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-17-0025 § 1, 2017)

18.29.090 Non-compliance declared a nuisance.

A. Failure to comply with any of the applicable requirements of this Chapter shall constitute a public nuisance. Any violation of this Chapter may be enforced by any method provided by this Code for the abatement of nuisances.

B. Costs incurred by the City in abating any violation of this Chapter shall be billed to the Responsible Person. If payment for abatement costs is not received within thirty (30) days of billing, the City may cause a notice of lien to be recorded against the property. The notice shall, at a minimum, identify the record owner or possessor of the property, set forth the last known address of the record owner or possessor, a description of the real property subject to the lien, and the amount of the costs assessed against the property.

C. The process described herein does not preclude the City from recovering any other Code violation or nuisance abatement costs incurred by the City in performing its enforcement efforts relating to vacant lots. (ORD-26-0004 § 26, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-17-0025 § 1, 2017)

18.29.100 Removal of Property from registry.

Prior to the removal of a vacant lot from the registration requirement established by this Chapter, the condition(s) which initially compelled registration of the lot must be resolved and an inspection by the City to determine compliance completed. No owner of a vacant lot shall be relieved of the registration requirement until all City fees, fines, penalties, or costs as applicable are paid in full. (ORD-26-0004 § 26, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-17-0025 § 1, 2017)

CHAPTER 18.30 PROACTIVE RENTAL HOUSING INSPECTION PROGRAM

18.30.010 Findings and purpose.

A. The Long Beach City Council finds and declares the desire to safeguard the stock of decent, safe, and sanitary rental housing in the City through a partnership of property owners, Tenants, the City, and the community.

B. The City Council recognizes that the preservation of existing rental housing stock is important. Rental housing provides needed housing for many and is a valuable asset that must be preserved and maintained. The City has significant interest in ensuring that rental housing remains a desirable housing option for its citizens.

C. Even though most rental housing in the City meets building and safety code requirements, over time, housing may deteriorate due to circumstance or intentional or unintentional neglect by property owners, managers, and Tenants. This deterioration may result in substandard conditions that adversely affect the economic values of neighboring structures, and that are hazardous to the public health and safety. In some cases, property owners choose not to make the necessary repairs because of cost, and Tenants do not report the deficiencies.

D. California law requires that all rental housing properties comply with the minimum standards for public health, safety, and welfare. One (1) effective way to seek compliance with those standards is through routine periodic inspections of all rental housing properties and education of property owners and Tenants regarding their respective rights and responsibilities. Accordingly, it is the intent of the Long Beach City Council to enact the provisions of this Chapter as the basis for establishing a Proactive Rental Housing Inspection Program aimed at securing City-wide compliance of rental housing properties with minimum standards. City-wide compliance will reduce and prevent blight and ensure that all persons who live in rental housing units are provided decent, safe, and sanitary housing.

E. As such, the City calls for the regulation and continuation of the self-funding, pro-active inspection programs for residential rental properties consisting of four (4) or more dwelling units, known as the Proactive Rental Housing Inspection Program. (ORD-26-0004 § 27, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.30.020 Definitions.

As used in this Chapter, the following terms and phrases are defined as follows:

"Director" is the Director of Community Development or a duly authorized representative.

"Person" is and includes any individual, partnership of any kind, corporation, limited liability company, association, joint venture or other organization or entity, however formed, as well as trustees, heirs, executors, administrators, or assigns, or any combination of such persons.

"Property Owner" is any person who owns one (1) or more Residential Rental Properties consist-

ing of four (4) or more dwelling units. The terms "property owner," "owner," "landlord," "person," and "operator" may be used interchangeably herein.

"Residential Rental Property" is any building or property that includes at least four (4) residential units (exclusive of permitted ADU and JADUs). This includes but is not limited to apartment houses, boarding houses, lodging houses, and rooming houses in the City of Long Beach.

"Tenant" is a person who occupies land, property, or unit from a property owner for residential purposes regardless of relationship to property owner or payment of rent. (ORD-26-0004 § 27, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.30.030 Scope.

The provisions of this Chapter shall apply to all owners of one (1) or more qualifying residential rental properties located within the City of Long Beach. (ORD-26-0004 § 27, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.30.040 Proactive Rental Housing Inspection Program registration.

A. Registration. Each Property Owner shall register for the Proactive Rental Housing Inspection Program ("PRHIP") on a form provided by the Department of Community Development. Registration is due within sixty (60) days of the date that the residential rental property was acquired or converted into a residential rental property.

B. Verification. All registration documents shall be signed under penalty of perjury and are subject to verification by the Department of Community Development. It is unlawful for any person to knowingly make a false statement of fact or knowingly omit any information that is required to register a rental housing unit pursuant to this Section. (ORD-26-0004 § 27, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.30.050 Proactive Rental Housing Inspection Program fees.

A. Each year, the Property Owner shall pay the PRHIP Multiple Dwelling Unit Inspection permit fee (PRHIP Fee) in the amount set forth in the City's Master Fee and Charges Schedule. Payment of the fee is due on the later of:

1. November 1; or

2. Within 60 days of the date the Residential Rental Property was acquired or converted to a Residential Rental Property. In this instance, a prorated portion of the PRHIP fee will be due. Such prorating will be based on the quarter in which the Residential Rental Property was acquired or converted.

B. A re-inspection fee shall be imposed when an additional inspection is conducted in accordance with Subsection 18.30.120.D of this Chapter. The amount of the fee shall be as set forth in the City's Master Fee and Charges Schedule.

C. The PRHIP fee required by this Chapter is in addition to and not in lieu of any other applicable fees or taxes that may be required. (ORD-26-0004 § 27, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.30.060 Penalty.

A. Failure to Pay Annual Fee. In addition to any remedies the City may elect to pursue pursuant to this Code, for failure to pay the annual PRHIP fee when due, the Director shall add a penalty of twenty-five percent (25%) of the permit fee 30 days following the due date.

B. Interest. The failure of the owner to pay the PRHIP fee or late penalty may result in the imposition of a special assessment and/or lien against the residential rental property on which the violation occurred, after which the amount so determined shall bear interest at the rate of twelve percent (12%) per annum until paid, and/or filing of an action with the Small Claims Court for recovery of the fine and late penalty. The only issue to be adjudicated by the Small Claims Court shall be whether or not the fines and possible late

fees were paid. In the Small Claims Court action, the City may also recover its costs, according to proof.

C. Penalties for noncompliance.

1. The violation of any provision of this Chapter is unlawful and constitutes a misdemeanor, punishable by a fine of not more than one thousand dollars ($1,000.00) or a jail term of not more than six (6) months, or both. Each and every day a violation occurs shall be deemed a separate violation.

2. In addition to the remedies set forth herein, the City, in its sole discretion, may also issue Administrative Citations in accordance with Chapter 9.65 to any person or entity that violates the provisions of this Chapter. (ORD-26-0004 § 27, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.30.070 Appeal of late penalty.

A. Any recipient of a late penalty may appeal said penalty by completing a written request for hearing form, obtained from the Department of Community Development and returning the written request for hearing form to the Department of Community Development, together with a deposit in the total amount of the fee and any late charges.

B. The written request and deposit must be received by the Department of Community Development within thirty (30) days of the date that City sent notice of the delinquency. Failure to file a timely appeal of the late penalty shall be deemed a waiver of the right to appeal and to seek judicial review.

C. The hearing will proceed before the Board of Examiners, Appeals and Condemnation in accordance with the procedure set forth in Section 18.30.080. (ORD-26-0004 § 27, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.30.080 Hearing procedure.

A. No hearing to appeal a late penalty shall be held unless and until a request for hearing form has been completed and submitted, and the deposit has been paid consistent with the requirements of Section 18.30.070.

B. A hearing shall occur before the Board of Examiners, Appeals and Condemnation at its next regularly scheduled meeting that is not less than thirty (30) days from the date the request for hearing is completed and submitted in accordance with the provisions of this Chapter. The cited party requesting the hearing shall be notified in writing of the time and place set for the hearing at least ten (10) calendar days prior to the date of the hearing.

C. The Board of Examiners, Appeals and Condemnation shall only consider evidence that is relevant to whether the late payment penalty is proper. Courtroom rules of evidence shall not apply. Relevant hearsay evidence and written reports may be admitted whether or not the speaker or author is present to testify, if the Board of Examiners, Appeals and Condemnation determines that such evidence is reliable. Admission of evidence and the conduct of the hearing shall be controlled by the Board of Examiners, Appeals and Condemnation in accordance with the fundamentals of due process. The Board of Examiners, Appeals and Condemnation may set reasonable limits on the length of the hearing, and shall allow the appellant at least as much time to present his/her case as is allowed to the City.

D. The failure of the appellant to appear at the hearing shall constitute a forfeiture of the fine and a failure to exhaust administrative remedies.

E. Any documents prepared by the City in connection with the late payment penalty assessed may be submitted and shall constitute prima facie evidence of the respective facts contained in those documents.

F. The Board of Examiners, Appeals and Condemnation may continue the hearing or request additional information from the enforcement officer, his/her designee or the appellant prior to issuing a written decision. (ORD-26-0004 § 27, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.30.090 Board of Examiners, Appeals and Condemnation's decision.

A. After considering all of the testimony and evidence submitted at the hearing, the Board of Examiners, Appeals and Condemnation shall issue a written decision within fifteen (15) business days of the hearing. The decision of the Board of Examiners, Appeals and Condemnation shall be final.

B. If the Board of Examiners, Appeals and Condemnation denies the appeal, then the deposit shall be retained by the City.

C. If the Board of Examiners, Appeals and Condemnation grants the appeal, then the City shall refund the deposit within thirty (30) business days from the date of the final written decision.

D. The appellant and City shall each be served with a copy of the Board of Examiners, Appeals and Condemnation's written decision. (ORD-26-0004 § 27, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.30.100 Tenant rights and responsibilities.

After August 1, 2015, prior to the commencement of any tenancy of a rental housing unit, the Property Owner shall provide the Tenant(s) with information concerning Tenant rights and responsibilities. The information shall be provided in a form or forms approved by the Director. (ORD-26-0004 § 27, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.30.110 Property owner contact representative.

A. Designate Representative. All property owners shall designate one or more contact representatives with full authority to act on behalf of the owner for all purposes under this Chapter. Notice to any person so designated shall constitute service of any notices from the City regarding the property. The owner of the rental property may act as the contact representative.

B. Contact Information. A contact representative must establish and maintain a telephone number and mailing address. A contact representative may also provide an email address. (ORD-26-0004 § 27, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.30.120 Inspections.

A. PRHIP Inspection. In accordance with the requirements of this Subsection, the City shall be authorized to periodically conduct an inspection of residential rental properties to assure compliance with all applicable building, housing, and sanitation codes and ordinances. Property Owners and Tenants shall provide access to all common areas of a residential rental property for inspection when requested by the City's Department of Community Development.

B. Frequency of inspections. It is the intent of the City that all residential rental properties subject to this Chapter will receive a periodic inspection.

C. Random sampling inspections. The inspection shall be made of the exterior of the property, all common areas, and all exits. Inspectors shall request access to no less than ten percent (10%) of the rental units and garages where applicable in a Residential Rental Property. If access is granted, the inspector(s) shall inspect at least ten percent (10%) of the total units in the building. If the inspector discovers any violations, the inspector may conduct an inspection of additional units up to one hundred percent (100%) of the units.

D. Re-inspections. If during a PRHIP inspection there are building, housing, sanitation code, other Long Beach Municipal Code violations, or permit violations on the property, one (1) or more re-inspections of the residential rental property may be required.

E. Code enforcement. When during an inspection a building, housing, sanitation code, or Long Beach Municipal Code violation is noted, the City Inspector shall document the violation, advise the owner or operator of the violation and of the

action which must be undertaken and completed in order to remedy the violation. Failure to abate code violations in a timely manner may result in additional enforcement action in accordance with Titles 9, 18, and any other applicable Titles of the LBMC.

F. Administrative Citation schedule. When during an inspection a building, housing, sanitation code, or Long Beach Municipal Code violation is noted that poses an imminent threat to the health and safety of the occupants or surrounding residents, the City Inspector will notify the owner of the violation in accordance with Subsection 18.30.120.E, and will notify the City Prosecutor's Office of the violation within twenty-four (24) hours of the inspection. If the owner fails to abate the violation within seventy-two (72) hours, the City Inspector may issue an administrative citation every fifteen (15) days for each continuing violation. (ORD-26-0004 § 27, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.30.130 Notice.

A. The City shall serve written notice of the date and time of any inspection to be conducted pursuant to this Chapter, by mailing such notice at least fourteen (14) calendar days prior to the date of the inspection. Notice shall be mailed to the owner and the local contact representative at their registered mailing address. In the case of multiple owners of the same property, notice to any one (1) of the property owners designated on the registration application is sufficient notice.

B. The City shall also mail a copy of the inspection notice to the rental housing units on the property. (ORD-26-0004 § 27, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.30.140 Refusal to permit inspections.

A. Inspection. If an inspection is scheduled and entry is thereafter refused or cannot be obtained, the inspector shall have recourse to every remedy provided by law to secure lawful entry and inspect the premises, including but not limited to securing an inspection warrant pursuant to California Code of Civil Procedure Sections 1822.50 through 1822.57. The inspector shall provide notice that a warrant has been issued to both the Property Owner and the Tenant, invitee, or guest at least 24-hours before the warrant is executed, unless the judge finds that immediate execution is reasonably necessary under the circumstances shown.

B. Right of Entry. Notwithstanding the foregoing, if the inspector has reasonable cause to believe that the residential rental property is so hazardous, unsafe, or dangerous as to require immediate inspection to safeguard the public health and safety, the inspector shall have the right to immediately enter and inspect the premises and may use any reasonable means required to effect the entry and make an inspection. (ORD-26-0004 § 27, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.30.150 Change of ownership.

When ownership of a residential rental property changes, either the prior owner shall notify the Department of this event prior to the recordation of an instrument of conveyance with the Los Angeles County Recorder's office or the new owner shall notify the Department within sixty (60) days after recordation of an instrument of conveyance with the Los Angeles County Recorder's office. If the Director is not so notified, the existing registration for the residential rental property shall automatically be null and void. The new owner will not have to pay the program fees until the following calendar year provided all fees were paid by the prior owner of the residential rental property. (ORD-26-0004 § 27, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.30.160 Annual review of program.

City staff shall provide data related to PRHIP including, but not limited to, the number of in-

spections performed, cases opened, cases resolved, and cases reported to the State Tax Franchise Board, in the required annual Housing Element report for the City Council to review the effectiveness of these regulations, and shall enact modifications, if necessary. (ORD-26-0004 § 27, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.30.170 Regulations non-exclusive.

The provisions of this Chapter regulating residential rental properties are not intended to be exclusive and compliance with this Chapter shall not excuse noncompliance with any other applicable provision, requirement, or regulation of this Code or any applicable state and/or federal law. Nothing in this Chapter shall limit or preclude inspections conducted by the Fire Department for compliance with Fire Codes. (ORD-26-0004 § 27, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.30.180 Alternative non-exclusive remedies.

In addition to the remedies and penalties set forth herein, the City in its sole discretion, may also refer any qualifying property to the State Franchise Tax Board Substandard Housing Program to disallow income tax deductions claimed for interest, taxes, amortization, and depreciation related to substandard housing or to issue an Administrative Citation in accordance with Chapter 9.65 to any person or entity that violates the provisions of this Chapter. (ORD-26-0004 § 27, 2026; ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.30.190 Conflicts.

If the provisions, requirements, or regulations of this Chapter conflict with or contravene any other provision, requirement, or regulation of this Code, the provisions, requirements, or regulations of this Chapter shall prevail as to all matters and questions arising out of the subject matter of this Chapter. (ORD-26-0004 § 27, 2026; ORD-25-0019 § 1(Exh. A), 2025)

CHAPTER 18.40 BUILDING CODE*

18.40.010 Adoption of California Building Code.

The City Council adopts and incorporates by reference as though set forth in full in this chapter the 2025 Edition of the California Building Code (herein referred to as the "California Building Code"). The California Building Code is Part 2 of the California Code of Regulations, Title 24, also referred to as the California Building Standards Code. This part is based on the provisions of the 2024 Edition of the International Building Code (herein referred to as the "International Building Code") as developed by the International Code Council with necessary California amendments. The following appendices of the California Building Code are included: Appendices G, I, P and Q. The following sections, chapters or appendices of the California Building Code are deleted: Sections 101 through 116 of Chapter 1, Division II, Section 3113 of Chapter 31, and Section 3308 of Chapter 33; Chapters 27, 28, 29, 31A, 31C, 31D, 31E, 31F, 32, and 34; and Appendices A, B, C, D, E, F, H, J, K, L, M, N, and O.

The adoption of the California Building Code is subject to the changes, amendments and modifications to said code as provided in this chapter, and certain provisions of the Long Beach Municipal Code, which shall remain in full force and effect as provided in this title. Such codes and code provisions shall constitute and be known as the Long Beach Building Code. A copy of the California Building Code, printed as code in book form, shall be on file in the Office of the City Clerk. (ORD-25-0019 § 1(Exh. A), 2025)

***Editor's note**—ORD-25-0019 § 1(Exh. A), adopted Nov. 11, 2025, amended Ch. 18.40 in its entirety to read as herein set out. Former Ch. 18.40, §§ 18.40.010—18.40.830, pertained to similar subject matter, and derived from ORD-22-0033 § 1(Exh. A), adopted Nov. 15, 2022.

18.40.020 Amend CBC Section 201.4—Terms not defined.

Section 201.4 of the California Building Code is amended to read as follows:

201.4 Terms not defined. Where terms are not defined through the methods authorized by this section, such terms shall have ordinarily accepted meanings such as the context implies. Webster's Third New International Dictionary of the English Language, Unabridged, shall be considered as providing ordinarily accepted meanings. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.040 Amend CBC Section 302.1—Occupancy classification.

The last two sentences in Section 302.1 of the California Building Code are amended to read as follows:

Where a structure is proposed for a purpose that is not specifically listed in this section or about which there is any question, such structure shall be classified, as determined by the Building Official, in the occupancy it most nearly resembles based on the fire safety and relative hazard. Occupiable roofs shall be classified, as determined by the Building Official, in the group that the occupancy most nearly resembles, according to the fire safety and relative hazard, and shall comply with Section 503.1.4. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.050 Amend CBC 901.2—Fire protection systems.

Exception in Section 901.2 of the California Building Code is amended to read as follows:

Exception: Any fire protection or life-safety system not required by this code or the California Fire Code shall be permitted to be installed for complete protection throughout the entire building or structure provided that such system meets the requirements of this code or the California Fire Code. Any fire protection or life-safety system not required by this code or the California Fire Code may be permitted to be installed for partial protection provided the building or structure or portion thereof is separated by fire walls without door or window openings if approved by the Fire Code Official. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.060 Add CBC Section 901.8—Protection of fire protection systems and equipment.

Section 901.8 is added to Chapter 9 of the California Building Code is to read as follows:

901.8 Protection of fire protection systems and equipment. Fire protection systems and equipment subject to possible vehicular damage shall be adequately protected with guard posts in accordance with Section 312 Vehicle Impact Protection of the California Fire Code, as amended in Chapter 18.48. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.070 Amend CBC Section 903.1—General.

Section 903.1 of the California Building Code is amended to read as follows:

903.1 General. Automatic sprinkler systems shall comply with this section.

903.1.1 Alternative protection. Alternative automatic fire-extinguishing systems complying with Section 904 shall be permitted instead of automatic sprinkler system protection where recognized by the applicable standard and approved by the Fire Code Official.

903.1.2 Existing buildings. An automatic sprinkler system shall be installed in all existing occupancies as required by this section if any of the following occurs:

1. A change in occupancy classification to another occupancy classification that would require an automatic sprinkler system as required by this code for the new occupancy.
2. A determination by the Fire Code Official that an automatic sprinkler system is required to provide a minimum level of public safety.

903.1.3 Partial automatic sprinkler systems. Partial automatic sprinkler systems are not allowed. Where automatic sprinkler systems are required to be installed by this section, any

other sections in this code or the California Fire Code, any nationally recognized standards, or are electively installed, the automatic sprinkler system shall be installed throughout the entire building or structure. Partial protection may be allowed provided the building or structure or portion thereof is separated by fire walls without door or window openings if approved by the Fire Code Official. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.080 Amend CBC Section 903.2—Where required.

Section 903.2 of the California Building Code is amended by the addition of the following paragraph to read as follows:

All new commercial, industrial or nonresidential buildings or structures that require two or more exits or that are greater than 3,000 square feet (279 m^2) shall be protected by an automatic sprinkler system. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.085 Amend CBC Section 903.2.8—Group R.

Section 903.2.8 of the California Building Code is amended by the addition of the following paragraphs to read as follows:

All new multi-family (3 or more units) residential, hotels, motels, or similar buildings shall be protected by an automatic sprinkler system.

All new single-family dwellings and duplexes shall be protected by an automatic sprinkler system. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.090 Add CBC Section 903.3.5.3—Hydraulic calculations margin.

Section 903.3.5.3 is added to Chapter 9 of the California Building Code to read as follows:

903.3.5.3 Hydraulic calculations margin. Fire protection system hydraulic calculations shall include a ten percent (10%) safety margin between the available water supply and the required system supply. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.100 Add CBC Section 903.3.10.1—Control valve location.

Section 903.3.10.1 is added to Chapter 9 of the California Building Code to read as follows:

903.3.10.1 Control valve location. Fire sprinkler system control valves shall be located within the stairway designated as "Number 1", as required by the Fire Code Official. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.110 Add CBC Section 903.4.2.1—Signal reporting.

Section 903.4.2.1 is added to Chapter 9 of the California Building Code to read as follows:

903.4.2.1 Signal reporting. All signals shall be transmitted to the remote annunciator and supervising station with the specific location, type and address of each device. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.120 Amend CBC Section 903.4.3—Alarms.

Section 903.4.3 of the California Building Code is amended by the addition of Sections 903.4.3.1 and 903.4.3.2 to read as follows:

903.4.2.1 Alarms. At least one (1) additional horn and strobe device is required on the interior of a building at the main entrance or in a location as approved by the Fire Code Official.

903.4.2.2 Manual pull station. At least one (1) manual pull station is required on the interior of a building at the main entrance or in a location as approved by the Fire Code Official. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.130 Add CBC Section 903.4.4—Remote annunciator.

Section 903.4.4 is added to Chapter 9 of the California Building Code to read as follows:

903.4.4 Remote annunciator. A remote annunciator shall be provided at the main entrance, the first suite in a multi-suite building, or in a location as approved by the Fire Code Official. The remote annunciator shall be key operated and shall have the capability to silence and reset the system, or by other approved means. The visual description shall

lock in until the system is reset and shall not be cancelled by operation of an audible alarm-silencing switch. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.140 Add CBC Section 905.1.1—Design.

Section 905.1.1 is added to Chapter 9 of the California Building Code to read as follows:

905.1.1 Design. All standpipe systems, except Class II systems, shall be designed to deliver a minimum of one hundred twenty-five (125) psi at the discharge of all standpipe outlets. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.150 Amend CBC Section 905.4 Subsection 1—Location of Class I standpipe hose connections.

Subsection 1 of Section 905.4 of the California Building Code is amended to read as follows:

1. In every required interior exit stairway or exterior exit stairway, a hose connection shall be provided for each floor level. Hose connections shall be located at the floor landing of each floor, unless otherwise approved by the Fire Code Official. See Section 909.20.2.3 for additional provisions in smokeproof enclosures. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.160 Add CBC Sections 907.1.6 through 907.1.10—General.

Sections 907.1.6 through 907.1.10 are added to Chapter 9 of the California Building Code to read as follows:

907.1.6 Voluntary. Any fire alarm system not required by this code or the California Fire Code shall be furnished for complete protection and meet all requirements of this code and the California Fire Code, unless approved by the Fire Code Official.

907.1.7 Evacuation. Buildings over 3 stories may be required to provide building evacuation based on the floor of alarm, the floor above and the floor below, in lieu of a general alarm, at the discretion of the Fire Code Official.

907.1.8 Control panels. Fire alarm system control panels, including sprinkler monitoring panels, shall be utilized for connecting and supervising fire alarm and/or fire related equipment only. Security or similar devices shall not be connected to a fire alarm or sprinkler monitoring control panel. The use of control panels capable of this feature is subject to the following:

1. The owner of the facility where the panel is to be installed shall provide an original letter on a company letterhead to the Long Beach Fire Department stating that not now, nor in the future, will security or similar equipment be connected to the fire alarm or sprinkler monitoring control panel.
2. New and/or existing control panels installed after the adoption of this ordinance and found to be in violation of this requirement shall be subject to corrective action as determined by the Fire Code Official.

907.1.9 Remote annunciator. A remote annunciator shall be provided at the main entrance, the first suite in a multi-suite building, or in a location as approved by the Fire Code Official. The remote annunciator shall have the capability to silence and reset the system by an approved key located in the Knox box or other approved means.

907.1.10 Alarms. Where fire alarm systems are installed in nonsprinklered buildings, an exterior horn and strobe device shall be installed and located on the address side of the building closest to the location of the remote annunciator. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.170 Amend CBC Section 907.3.1 and Exception 2—Duct smoke detectors.

Section 907.3.1 and Exception 2 of Section 907.3.1 of the California Building Code is amended to read as follows:

907.3.1 Duct smoke detectors. Smoke detectors installed in ducts shall be listed for the air velocity, temperature and humidity present in the duct. Duct smoke detectors shall be connected to the building's fire alarm system or sprinkler monitoring system, when one is installed. Activation of a duct smoke detector shall initiate a visible and

audible supervisory signal at a constantly attended location and shall perform the intended fire safety function in accordance with this code and the California Mechanical Code. Duct smoke detectors shall not be used as a substitute for required open area detection.

Exceptions:

1. The supervisory signal at a constantly attended location is not required where above duct smoke detectors activate the building's alarm notification appliances.
2. In occupancies not required to be equipped with a fire alarm or sprinkler monitoring system, actuation of a duct smoke detector shall activate a visible and an audible signal in an approved location. Duct smoke detector trouble conditions shall activate a visible or audible signal in an approved location and shall be identified as an air duct detector trouble. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.180 Add CBC Section 907.9—Fire alarm upgrade.

Section 907.9 is added to Chapter 9 of the California Building Code to read as follows:

907.9 Fire alarm upgrade. All existing multifamily residential, hotels, motels and high-rise buildings shall upgrade the existing fire alarm system to current code, at the time of replacement of the existing fire alarm control panel. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.190 Add CBC Section 907.10—Smoke removal system.

Section 907.10 is added to Chapter 9 of the California Building Code to read as follows:

907.10 Firefighter smoke removal system. A natural or mechanical Fire Department approved ventilation system for the removal of products of combustion shall be provided above and below grade on every level, at the discretion of the Fire Code Official, and shall consist of one of the following:

1. Panels or windows in the exterior walls which can be opened remotely from an approved location other than the fire floor. Such venting facilities shall be provided at the rate of twenty square feet per lineal feet of exterior wall in each story and shall be distributed around the perimeter at not more than fifty-foot intervals. Such windows or panels and their controls shall be clearly identified.

Exception: When a complete automatic fire extinguishing system is installed, windows or panels manually openable from within the fire floor or approved fixed tempered glass may be used in lieu of the remotely operated openable panels and windows. Such windows shall be clearly identified and shall be of the size and spacing called for above.

2. When a complete and approved automatic fire extinguishing system is installed, the mechanical air-handling equipment may be designed to accomplish smoke removal. Under fire conditions, the return and exhaust air shall be moved directly to the outside without recirculation to other sections of the building. The air-handling system shall provide a minimum of one exhaust air change each ten minutes for the area involved. The system shall utilize a firefighter smoke exhaust panel located at the main entrance to the building or as required by the Fire Code Official and shall be permanently labeled "Fire Department Smoke Evacuation Use Only". Operation of the system shall be by the use of a Knox key switch.
3. Any other design which will produce equivalent results as approved by the Fire Code Official. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.200 Amend CBC Section 910.3—Smoke and heat vents.

Section 910.3 of the California Building Code is amended to read as follows:

910.3 Smoke and heat vents. The design and installation of smoke and heat vents shall be in

accordance with Sections 910.3.1 through 910.3.6. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.210 Add CBC Section 910.3.6—Sprinkler buildings.

Section 910.3.6 is added to Chapter 9 of the California Building Code to read as follows:

910.3.6 Sprinkler buildings. Smoke and heat vents fusible links shall be designed at a minimum of 100 degrees above the temperature rating of the fire sprinklers. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.220 Add CBC Section 912.1.1—Design.

Section 912.1.1 is added to Chapter 9 of the California Building Code to read as follows:

912.1.1 Design. Fire Department connections, where required, shall be provided with a minimum number of two (2) 2-½ inch inlets, regardless of the size of the fire sprinkler system. Where fire protection system demands are in excess of 1,000 gpm, a minimum of four (4) 2-½ inch inlets shall be provided.

Hazardous locations, high-rise buildings or where fire protection system demands are in excess of 2,000 gpm, a second fire department connection utilizing four (4) 2-½ inch inlets may be required at the discretion of the Fire Code Official. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.230 Amend CBC Section 912.2.1—Visible location.

Section 912.2.1 of the California Building Code is amended to read as follows:

912.2.1 Visible location. Fire department connections shall be located on the address side of buildings or structures and shall be within 150 feet of a public fire hydrant, except as required by the Section 507.5.1.1 of the California Fire Code, or as approved by the Fire Code Official. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.240 Amend CBC Section 912.4—Access.

Section 912.4 of the California Building Code is amended to read as follows:

912.4 Access. Immediate access to fire department connections shall be maintained at all times and without obstruction by fences, bushes, trees, walls or other fixed or movable object. Access to fire department connections shall be approved by the Fire Code Official.

Fire department connections, where located in landscaping or other similar areas, shall be provided with a minimum 3-foot concrete pad around the fire department connection, and an approved concrete pathway leading to the fire department connection.

Exceptions:

1. Fences, where provided with an access gate equipped with a sign complying with the legend requirements of Section 912.5 and a means of emergency operation. The gate and the means of emergency operation shall be approved by the fire code official and shall be maintained operational at all times.
2. When acceptable to the fire enforcing agency, fire department connections for Group I-3 detention facilities may be located inside all security walls or fences on the property. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.250 Add CBC Section 1003.8—Protection of means of egress.

Section 1003.8 is added to Chapter 10 of the California Building Code to read as follows:

1003.8 Protection of means of egress. When the Fire Code Official determines that means of egress require protection from possible vehicular damage, crash posts shall be installed in accordance with Section 312 Vehicle Impact Protection of the California Fire Code. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.260 Add CBC Sections 1011.12.3 and 1011.12.4—Stairway to roof.

Sections 1011.12.3 and 1011.12.4 are added to Chapter 10 of the California Building Code to read as follows:

1011.12.3 Ladder. A fixed ladder shall be provided for access to the hatch or trap door.

1011.12.4 Stairway 1. When a stairway to the roof is required, it shall be designated as "Stairway

1." (ORD-25-0019 § 1(Exh. A), 2025)

18.40.270 Amend CBC Section 1208.5—Efficiency dwelling units.

Section 1208.5 of the California Building Code is amended to read as follows:

1208.5 Efficiency dwelling units. As modified pursuant to California Health and Safety Code Section 17958.1, efficiency dwelling units shall comply with the following:

1. The unit for occupancy by no more than two persons shall have a minimum floor area of 150 square feet. An additional 50 square feet of floor area shall be provided for each occupant of such unit in excess of two. The unit shall also comply with Sections 1208.1, 1208.2, and 1208.4.
2. The unit shall be provided with a separate closet.
3. For other than Accessible, adaptable dwelling units, the unit shall be provided with a kitchen sink, cooking appliance and refrigeration facilities, each having a clear working space of not less than 30 inches in front. Light and ventilation conforming to this code shall also be provided.
4. The unit shall be provided with a separate bathroom containing a water closet, lavatory, and bathtub or shower. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.275 Amend CBC Section 1612.2.

Section 1612.2 of the California Building Code is amended to read as follows:

1612.2 Design and construction. The design and construction of buildings and structures in flood hazard areas, including coastal high hazard areas and coastal A zones, shall be in accordance with Chapter 5 of ASCE 7 and ASCE 24.

The design flood elevation (DFE) shall be the greater of the DFE as defined in Chapter 5 of ASCE 7 and/or ASCE 24 and the base flood elevation (BFE) plus twelve (12) inches of flood freeboard and six (6) inches of freeboard to account for future sea-level rise. For buildings and structures with a use or occupancy defined as flood design class 3 or 4, the design flood elevation shall be the greater of the DFE as defined in Chapter 5 of ASCE 7 and/or ASCE 24 and the BFE plus twenty-four (24) inches of flood freeboard and six (6) inches of freeboard to account for future sea-level rise. Elevators, escalators, conveying systems and their components shall conform to ASCE 24 and ASME A17.1/CSA B44 as applicable.

Exception: For buildings and structures with a use or occupancy defined as flood design class 3 and located in flood hazard areas not identified as coastal high hazard areas or coastal A zones, the DFE shall be the greater of the DFE as defined in Chapter 5 of ASCE 7 and/or ASCE 24 and the BFE plus twelve (12) inches of flood freeboard and six (6) inches of freeboard to account for future sea-level rise. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.280 Amend CBC Section 1612.3—Establishment of flood hazard areas.

Section 1612.3 of the California Building Code is amended to read as follows:

1612.3 Establishment of flood hazard areas. To establish flood hazard areas, the City shall adopt a flood hazard map and supporting data. The flood hazard map shall include, at a minimum, areas of special flood hazard as identified by the Federal Emergency Management Agency in an engineering report entitled "The Flood Insurance Study for the City of Long Beach" dated July 6, 1998, as amended or revised with the accompanying Flood Insurance Rate Map (FIRM) and Flood Boundary and Floodway Map (FBFM) and related supporting data along with any revisions thereto. The adopted flood hazard map and supporting data are hereby adopted by reference and declared to be part of this section. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.290 Amend CBC Section 1612.4—Flood hazard documentation.

Section 1612.4 Items 1.1, 1.4 and 2.1 of the California Building Code are amended to read as follows:

1.1 The elevation of the lowest floor, including the basement, as required by the lowest floor elevation inspection in Subsection 18.07.050.A.4 of the Long Beach Municipal Code and for the final inspection in Subsection 18.07.050.A.15 of the Long Beach Municipal Code.

1.4 For dry floodproofed nonresidential buildings, the elevation to which the building is dry floodproofed as required for the final inspection in Subsection 18.07.050.A.15 of the Long Beach Municipal Code.

2.1 The elevation of the bottom of the lowest horizontal structural member as required by the lowest floor elevation inspection in Subsection 18.07.050.A.4 of the Long Beach Municipal Code and for the final inspection in Subsection 18.07.050.A.15 of the Long Beach Municipal Code. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.300 Add CBC Sections 1613.8 and 1613.8.1—Amendments to ASCE 7.

Sections 1613.8 and 1613.8.1 are added to Chapter 16 of the California Building Code to read as follows:

1613.8 Amendments to ASCE 7. The provisions of Section 1613.8 shall be permitted as an amendment to the relevant provisions of ASCE 7.

1613.8.1 Values for Vertical Combinations. Modify ASCE 7 Section 12.2.3.1 Exception 3 as follows:

3. Detached one- and two-family dwellings up to two stories in height of light frame construction. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.310 Add CBC Section 1613.8.2—Wood Diaphragms.

Section 1613.8.2 is added to Chapter 16 of the California Building Code to read as follows:

1613.8.2 Wood Diaphragms. Modify ASCE 7 Section 12.11.2.2.3 as follows:

12.11.2.2.3 Wood Diaphragms. The anchorage of concrete or masonry structural walls to wood diaphragms shall be in accordance with AWC SDPWS 4.1.5.1 and this section. Continuous ties required by this section shall be in addition to the diaphragm sheathing. Anchorage shall not be accomplished by use of toenails or nails subject to withdrawal, nor shall wood ledgers or framing be used in cross-grain bending or cross-grain tension. The diaphragm sheathing shall not be considered effective for providing the ties or struts required by this section.

For structures assigned to Seismic Design Category D, E or F, wood diaphragms supporting concrete or masonry walls shall comply with the following:

1. The spacing of continuous ties shall not exceed 40 feet. Added chords of diaphragms may be used to form subdiaphragms to transmit the anchorage forces to the main continuous crossties.
2. The maximum diaphragm shear used to determine the depth of the subdiaphragm shall not exceed 75% of the maximum diaphragm shear. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.320 Add CBC Section 1613.8.3—Structural separation.

Section 1613.8.3 is added to Chapter 16 of the California Building Code to read as follows:

1613.8.3 Structural Separation. Modify ASCE 7 Section 12.12.2 as follows:

12.12.2 Structural Separation. All portions of the structure shall be designed and constructed to act as an integral unit in resisting seismic forces unless separated structurally by a distance sufficient to avoid damaging contact as set forth in this section.

Separations shall allow for the Design Earthquake Displacements, δ_{DE}, as determined in accordance with Section 12.8.6 and Equation 12.8-16, as modified below:

$$\delta_{DE} = C_d\delta_e + \delta_{di}$$

Adjacent structures on the same property shall be separated by at least δ_{SS}, determined as:

$$\delta_{SS} = \sqrt{(\delta_{DE1})^2 + (\delta_{DE2})^2} \quad (12.12\text{-}2)$$

Where δ_{DE1} and δ_{DE2} are the Design Earthquake Displacements of the adjacent structures at their adjacent edges. Where a structure adjoins a property line not common to a public way, the structure shall be set back from the property line by at least the displacement δ_{DE} of that structure.

EXCEPTION: Smaller separations or property line setbacks are permitted where justified by rational analysis based on inelastic response to design ground motions. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.330 Add CBC Section 1613.9—Suspended ceiling.

Section 1613.9 is added to Chapter 16 of the California Building Code to read as follows:

1613.9 Suspended Ceilings. Minimum design and installation standards for suspended ceilings shall be determined in accordance with the requirements of Section 2506.2.1 of this code and this section.

1613.9.1 Scope. This part contains special requirements for suspended ceilings and lighting systems. Provisions of Section 13.5.6 of ASCE 7 shall apply except as modified herein.

1613.9.2 General. The suspended ceilings and lighting systems shall be limited to 6 feet (1,828 mm) below the structural deck unless the lateral bracing is designed by a registered design professional.

1613.9.3 Sprinkler Heads. All sprinkler heads (drops) except fire-resistance-rated floor/ceiling or roof/ceiling assemblies, shall be designed to allow for free movement of the sprinkler pipes with oversize rings, sleeves or adaptors through the ceiling tile. Sprinkler heads and other penetrations shall have a 2 inch (50 mm) oversize ring, sleeve, or adapter through the ceiling tile to allow for free movement of at least 1 inch (25 mm) in all horizontal directions. Alternatively, a swing joint that can accommodate 1 inch (25 mm) of ceiling movement in all horizontal directions is permitted to be provided at the top of the sprinkler head extension.

Sprinkler heads penetrating fire-resistance-rated floor/ceiling or roof/ceiling assemblies shall comply with Section 714 of this code.

1613.9.4 Special Requirements for Means of Egress. Suspended ceiling assemblies located along means of egress serving an occupant load of 30 or more and lobbies accessory to Group A Occupancies shall comply with the following provisions.

1613.9.4.1 General. Ceiling suspension systems shall be connected and braced with vertical hangers attached directly to the structural deck along the means of egress. Spacing of vertical hangers shall not exceed 2 feet (610 mm) on center along the entire length of the suspended ceiling assembly located along the means of egress or at the lobby.

1613.9.4.2 Assembly Device. All lay-in panels shall be secured to the suspension ceiling assembly with two hold-down clips minimum for each tile within a 4-foot (1,219 mm) radius of the exit lights and exit signs.

1613.9.4.3 Emergency Systems. Independent supports and braces shall be provided for light fixtures required for exit illumination. Power supply for exit illumination shall comply with the requirements of Section 1008.3 of this code.

1613.9.4.4 Supports for Appendage. Separate support from the structural deck shall be provided for all appendages such as light fixtures, air diffusers, exit signs, and similar elements. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.340 Amend CBC Section 1704.6—Structural observations.

Section 1704.6 of the California Building Code is amended to read as follows:

1704.6 Structural observations. Where required by the provisions of Section 1704.6.1, the owner or the owner's authorized agent shall employ a structural observer to perform structural observations. The structural observer shall visually observe representative locations of structural systems, details and load paths for general

conformance to the approved construction documents. Structural observation does not include or waive the responsibility for the inspections or special inspections in Chapter 18.07 of the Long Beach Municipal Code or the special inspections in Section 1705 or other sections of this code. The structural observer shall be one of the following individuals:

1. The registered design professional responsible for the structural design, or
2. A registered design professional designated by the registered design professional responsible for the structural design.

Prior to the commencement of observations, the structural observer shall submit to the Building Official a written statement identifying the frequency and extent of structural observations.

The owner or owner's representative shall coordinate and call a preconstruction meeting between the structural observer, contractors, affected subcontractors and special inspectors. The structural observer shall preside over the meeting. The purpose of the meeting shall be to identify the major structural elements and connections that affect the vertical and lateral load resisting systems of the structure and to review scheduling of the required observations. A record of the meeting shall be included in the report submitted to the Building Official.

Observed deficiencies shall be reported in writing to the owner or owner's representative, special inspector, contractor and the Building Official. Upon the form prescribed by the Building Official, the structural observer shall submit to the Building Official a written statement at each significant construction stage stating that the site visits have been made and identifying any reported deficiencies which, to the best of the structural observer's knowledge, have not been resolved. A final report by the structural observer which states that all observed deficiencies have been resolved is required before acceptance of the work by the Building Official. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.350 Amend CBC Section 1704.6.1—Structural observations for structures.

Section 1704.6.1 of the California Building Code is amended to read as follows:

1704.6.1 Structural observations for structures. Structural observations shall be provided for those structures where one or more of the following conditions exist:

1. The structure is classified as Risk Category III or IV.
2. The structure is a high-rise building.
3. A lateral design is required for the structure or portion thereof.

   Exception: One-story wood framed Group R-3 and Group U Occupancies less than 2,000 square feet in area, provided the adjacent grade is not steeper than 1 unit vertical in 10 units horizontal (10% sloped), assigned to Seismic Design Category D.
4. Such observation is required by the registered design professional responsible for the structural design.
5. Such observation is specifically required by the City's building official. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.360 Amend CBC Section 1705.3—Concrete construction.

Section 1705.3 of the California Building Code is amended to read as follows:

1705.3 Concrete Construction. Special inspections and tests of concrete construction shall be performed in accordance with this section and Table 1705.3.

Exceptions: Special inspections and tests shall not be required for:

1. Isolated spread concrete footings of buildings three stories or less above grade plane that are fully supported on earth or rock, where the structural design of the footing is based on a specified compressive strength, f'c, no greater than 2,500 pounds per square inch (psi) (17.2 Mpa) regard-

less of the compressive strength specified in the construction documents or used in the footing construction.

2. Continuous concrete footings supporting walls of buildings three stories or less above grade plane that are fully supported on earth or rock where:

2.1. The footings support walls of light-frame construction;

2.2. The footings are designed in accordance with Table 1809.7; or

2.3. The structural design of the footing is based on a specified compressive strength, f'c, no greater than 2,500 pounds per square inch (psi) (17.2 Mpa), regardless of the compressive strength specified in the construction documents or used in the footing construction.

3. Nonstructural concrete slabs supported directly on the ground, including prestressed slabs on grade, where the effective prestress in the concrete is less than 150 psi (1.03 Mpa).

4. Concrete patios, driveways and sidewalks, on grade. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.370 Amend CBC Section 1705.13—Special inspections for seismic resistance.

Exception 3 of Section 1705.13 of the California Building Code is amended to read as follows:

3. The structure is a detached one- or two-family dwelling not exceeding two stories above grade plane, is not assigned to Seismic Design Category D, E or F and does not have any of the following horizontal or vertical irregularities in accordance with Section 12.3 of ASCE 7:

3.1 Torsional or extreme torsional irregularity.

3.2 Nonparallel systems irregularity.

3.3 Stiffness-soft story or stiffness-extreme soft story irregularity.

3.4 Discontinuity in lateral strength-weak story irregularity. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.380 Amend CBC Section 1707.1—Alternative test procedure.

Section 1707.1 of the California Building Code is amended by changing the reference to "Section 104.2.3" to read "Section 18.03.060 of the Long Beach Municipal Code." (ORD-25-0019 § 1(Exh. A), 2025)

18.40.390 Amend CBC Section 1807.1.4—Permanent wood foundation systems.

Section 1807.1.4 of the California Building Code is amended to read as follows:

1807.1.4 Permanent wood foundation systems. Permanent wood foundation systems shall be designed and installed in accordance with ACW PWF. Lumber and plywood shall be preservative treated in accordance with AWPA U1 (Commodity Specification A, Special Requirement 4.2) and shall be identified in accordance with Section 2303.1.9.1. Permanent wood foundation systems shall not be used for structures assigned to Seismic Design Category D, E or F. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.400 Amend CBC Section 1807.1.6—Prescriptive design of concrete and masonry foundation walls.

Section 1807.1.6 of the California Building Code is amended to read as follows:

1807.1.6 Prescriptive design of concrete and masonry foundation walls. Concrete and masonry foundation walls that are laterally supported at the top and bottom shall be permitted to be designed and constructed in accordance with this section. Prescriptive design of foundation walls shall not be used for structures assigned to Seismic Design Category D, E or F. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.410 Amend CBC Section 1807.2—Retaining walls.

Section 1807.2 of the California Building Code is amended to read as follows:

1807.2 Retaining walls. Retaining walls shall be designed in accordance with Sections 1807.2.1 through 1807.2.5. Retaining walls assigned to Seismic Design Category D, E or F shall not be partially or wholly constructed of wood. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.420 Amend CBC Section 1807.3.1—Limitations.

Section 1807.3.1 of the California Building Code is amended to read as follows:

1807.3.1 Limitations. The design procedures outlined in this section are subject to the following limitations:

1. The frictional resistance for structural walls and slabs on silts and clays shall be limited to one-half of the normal force imposed on the soil by the weight of the footing or slab.

2. Posts embedded in earth shall not be used to provide lateral support for structural or nonstructural materials such as plaster, masonry or concrete unless bracing is provided that develops the limited deflection required.

Wood poles shall be treated in accordance with AWPA U1 for sawn timber posts (Commodity Specification A, Use Category 4B) and for round timber posts (Commodity Specification B, Use Category 4B). Wood poles and posts embedded in direct contact with soil shall not be used for structures assigned to Seismic Design Category D, E or F.

Exception: Wood poles and posts embedded in direct contact with soil may be used to support nonhabitable, nonoccupiable structures such as fences when approved by the Building Official. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.430 Amend CBC Section 1809.3—Stepped footings.

Section 1809.3 of the California Building Code is amended to read as follows:

1809.3 Stepped footings. The top surface of footings shall be level. The bottom surface of footings shall be permitted to have a slope not exceeding one unit vertical in 10 units horizontal (10-percent slope). Footings shall be stepped where it is necessary to change the elevation of the top surface of the footing or where the surface of the ground slopes more than one unit vertical in 10 units horizontal (10-percent slope).

For structures assigned to Seismic Design Category D, E or F, the stepping requirement shall also apply to the top surface of grade beams supporting walls. Footings shall be reinforced with four 1/2-inch diameter (12.7 mm) deformed reinforcing bars. Two bars shall be place at the top and bottom of the footings as shown in Figure 1809.3.

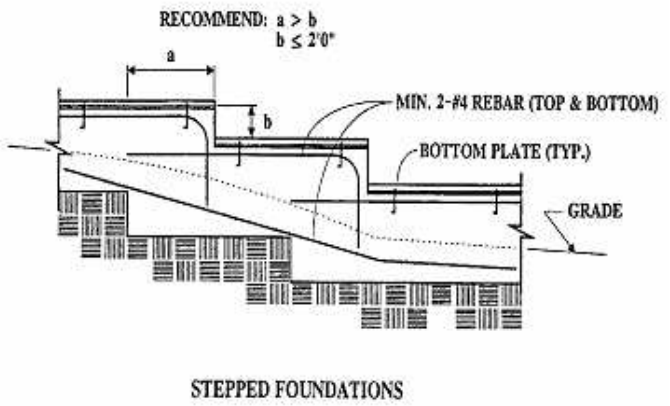


FIGURE 1809.3
STEPPED FOOTING
(ORD-25-0019 § 1(Exh. A), 2025)

18.40.440 Amend CBC Section 1809.7 and Table 1809.7—Prescriptive footings for light-frame construction.

Section 1809.7 and Table 1809.7 of the California Building Code are amended to read as follows:

1809.7 Prescriptive footings for light-frame construction. Where a specific design is not provided, concrete or masonry-unit footings supporting walls of light-frame construction shall be permitted to be designed in accordance with Table 1809.7. Light-frame construction using prescriptive footings in Table 1809.7 shall not exceed one story above grade plane for structures assigned to Seismic Design Category D, E or F.

TABLE 1809.7
PRESCRIPTIVE FOOTINGS SUPPORITNG WALLS OF LIGHT-FRAME CONSTRUCTION a, b, c, d, e

NUMBER OF FLOORS SUPPORTED BY THE FOOTING[f]	WIDTH OF FOOTING (inches)	THICKNESS OF FOOTING (inches)
1	12	6
2	15	6
3	18	8

For SI: 1 inch = 25.4 mm, 1 foot = 304.8 mm
a. Depth of footings shall be in accordance with Section 1809.4.
b. The ground under the floor shall be permitted to be excavated to the elevation of the top of the footing.
c. Not Adopted.
d. See Section 1908 for additional requirements for concrete footings of structures assigned to Seismic Design Category C, D, E or F.
e. For thickness of foundation walls, see Section 1807.1.6.
f. Footings shall be permitted to support a roof addition to the stipulated number of floors. Footings supporting roof only shall be as required for supporting one floor.
(ORD-25-0019 § 1(Exh. A), 2025)

18.40.450 Amend CBC Section 1809.12—Timber footings.

Section 1809.12 of the California Building Code is amended to read as follows:

1809.12 Timber footings. Timber footings shall be permitted for buildings of Type V construction and as otherwise approved by the Building Official. Such footings shall be treated in accordance with AWPA U1 (Commodity Specification A, Use Category 4B). Treated timbers are not required where placed entirely below permanent water level, or where used as capping for wood piles that project above the water level over submerged or marsh lands. The compressive stresses perpendicular to grain in untreated timber footings supported on treated piles shall not exceed 70 percent of the allowable stresses for the species and grade of timber as specified in the ANSI/AWC NDS. Timber footings shall not be used in structures assigned to Seismic Design Category D, E or F. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.460 Amend CBC Section 1810.3.2.4—Timber.

Section 1810.3.2.4 of the California Building Code is amended to read as follows:

1810.3.2.4 Timber. Timber deep foundation elements shall be designed as piles or poles in accordance with ANSI/AWC NDS. Round timber elements shall conform to ASTM D 25. Sawn timber elements shall conform to DOC PS-20. Timber deep foundation elements shall not be used in structures assigned to Seismic Design Category D, E or F. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.470 Amend CBC Section 1905.6.2—Seismic design categories C, D, E and F.

Section 1905.6.2 of the California Building Code is amended to read as follows:

1905.6.2 Seismic design categories C, D, E and F. Structures assigned to Seismic Design Category C, D, E or F shall not have elements of structural plain concrete, except as follows:

1. Concrete used for fill with a minimum cement content of two (2) sacks of Portland cement or cementious material per cubic yard.

2. Isolated footings of plain concrete supporting pedestals or columns are permitted, provided the projection of the footing beyond the face of the supported member does not exceed the footing thickness.

3. Plain concrete footings supporting walls are permitted provided the footings have at least two continuous longitudinal reinforcing bars. Bars shall not be smaller than No. 4 and shall have a total area of not less than 0.002 times the gross cross-sectional area of the footing. A minimum of one bar shall be provided at the top and bottom of the footing. Continuity of reinforcement shall be

provided at corners and intersections. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.480 Add CBC Sections 1905.8 through 1905.10, Modifications to ACI 318.

Sections 1905.8 through 1905.10 are added to Chapter 19 of the California Building Code to read as follows:

1905.8 ACI 318, Section 18.7.5. Modify ACI 318, Section 18.7.5, by adding Section 18.7.5.8 and 18.7.5.9 as follows:

18.7.5.8 Where the calculated point of contraflexure is not within the middle half of the member clear height, provide transverse reinforcement as specified in ACI 318 Section 18.7.5.1, Items (a) through (c), over the full height of the member.

18.7.5.9 At any section where the design strength, $_{\varphi}P_n$, of the column is less than the sum of the shears V_e computed in accordance with ACI 318 Sections 18.7.6.1 and 18.6.5.1 for all the beams framing into the column above the level under consideration, transverse reinforcement as specified in ACI 318 Sections 18.7.5.1 through 18.7.5.3 shall be provided. For beams framing into opposite sides of the column, the moment components are permitted to be assumed to be of opposite sign. For the determination of the design strength, $_{\varphi}P_n$, of the column, these moments are permitted to be assumed to result from the deformation of the frame in any one principal axis.

1905.9 ACI 318, Section 18.10.4. Modify ACI 318, Section 18.10.4, by adding Section 18.10.4.7 as follows:

18.10.4.7 Walls and portions of walls with Pu > 0.35 Po shall not be considered to contribute to the calculated shear strength of the structure for resisting earthquake-induced forces. Such walls shall conform to the requirements of ACI 318 Section 18.14.

1905.10 ACI 318, Section 18.12.6. Modify ACI 318, by adding Section 18.12.6.2 as follows:

18.12.6.2 Collector and boundary elements in topping slabs placed over precast floor and roof elements shall not be less than 3 inches (76 mm) or 6 db in thickness, where db is the diameter of the largest reinforcement in the topping slab. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.490 Amend CBC Section 2304.10.2—Fastener requirements.

Section 2304.10.2 of the California Building Code is amended to read as follows:

2304.10.2 Fastener requirements. Connections for wood members shall be designed in accordance with the appropriate methodology in Section 2302.1. The number and size of fasteners connecting wood members shall not be less than that set forth in Table 2304.10.2. Staple fasteners in Table 2304.10.2 shall not be used to resist or transfer seismic forces in structures assigned to Seismic Design Category D, E or F.

Exception: Staples may be used to resist or transfer seismic forces when the allowable shear values are substantiated by cyclic testing and approved by the Building Official. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.500 Add CBC Section 2304.10.3.1—Quality of nails.

Section 2304.10.3.1 is added to Chapter 23 of the California Building Code to read as follows:

2304.10.3.1 Quality of Nails. In Seismic Design Category D, E or F, mechanically driven nails used in wood structural panel shear walls shall meet the same dimensions as that required for hand-driven nails, including diameter, minimum penetration and minimum head diameter. Clipped head or box nails are not permitted in new construction. The allowable design value for clipped head nails in existing construction shall be multiplied by the nail-head-area ratio of the clipped head nails to that of the same size hand-driven nails. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.510 Amend CBC Section 2304.12.2.8—Wood used in retaining walls and cribs.

Section 2304.12.2.8 of the California Building Code is amended to read as follows:

2304.12.2.8 Wood used in retaining walls and cribs. Wood installed in retaining or crib walls shall be preservative treated in accordance with AWPA U1 for soil and fresh water use. Wood shall not be used in retaining or crib walls for structures assigned to Seismic Design Category D, E or F. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.520 Add CBC Section 2305.4—Hold-down connectors.

Section 2305.4 is added to Chapter 23 of the California Building Code to read as follows:

2305.4 Hold-down connectors. In Seismic Design Category D, E or F, hold-down connectors shall be designed to resist shear wall overturning moments using approved cyclic load values or 75 percent of the allowable seismic load values that do not consider cyclic loading of the product. Connector bolts into wood framing shall require steel plate washers on the post on the opposite side of the anchorage device. Plate size shall be a minimum of 0.229 inch by 3 inches by 3 inches (5.82 mm by 76 mm by 76 mm) in size. Hold-down connectors shall be tightened to finger tight plus one-half (1/2) wrench turn just prior to covering the wall framing. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.530 Amend CBC Section 2306.2—Wood-frame diaphragms.

Section 2306.2 of the California Building Code is amended to read as follows:

2306.2 Wood-frame diaphragms. Wood-frame diaphragms shall be designed and constructed in accordance with ANSI/AWC SDPWS. Where panels are fastened to framing members with staples, requirements and limitations of ANSI/AWC SDPWS shall be met and the allowable shear values set forth in Table 2306.2(1) or 2306.2(2) shall only be permitted for structures assigned to Seismic Design Category A, B, or C.

Exception: Allowable shear values where panels are fastened to framing members with staples may be used if such values are substantiated by cyclic testing and approved by the building official.

The allowable shear values in Tables 2306.2(1) and 2306.2(2) are permitted to be increased 40 percent for wind design.

Wood structural panels used to resist seismic diaphragm forces in structures assigned to Seismic Design Category D, E or F shall be applied directly to the framing members.

Exception: Wood structural panels are permitted to be fastened over solid lumber planking or laminated decking, provided the panel joints and lumber planking or laminated decking joints do not coincide. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.540 Amend CBC Section 2306.3—Wood-frame shear walls.

Section 2306.3 of the California Building Code is amended to read as follows:

2306.3 Wood-frame shear walls. Wood-frame shear walls shall be designed and constructed in accordance with ANSI/AWC SDPWS. For structures assigned to Seismic Design Category D, E, or F, application of Table 4.3A of ANSI/AWC SDPWS shall include the following:

1. Wood structural panel thickness for shear walls shall not be less than 3/8 inch thick and studs shall not be spaced at more than 16 inches on center.
2. The maximum nominal unit shear capacities for 3/8 inch wood structural panels resisting seismic forces in structures assigned to Seismic Design Category D, E or F is 400 pounds per linear foot (plf).

   Exception: Other nominal unit shear capacities may be permitted if such values are substantiated by cyclic testing and approved by the building official.
3. Nails shall be placed not less than 1/2-inch in from the panel edges and not less than 3/8-inch from the edge of the connecting members for shear greater than 350 plf using ASD or 500 plf using LRFD. Nails

shall be placed not less than 3/8-inch from panel edges and not less than 1/4-inch from the edge of the connecting members for shears of 350 plf or less using ASD or 500 plf or less using LRFD.

For structures assigned to Seismic Design Category D, E, or F, application of Table 4.3B of ANSI/AWC SDPWS shall not be allowed.

For structures assigned to Seismic Design Category D, E, or F, application of Table 4.3C of AWC SDPWS shall not be used below the top level in a multi-level building for structures.

Where panels are fastened to framing members with staples, requirements and limitations of AWC SDPWS shall be met and the allowable shear values set forth in Tables 2306.3(1), 2306.3(2) or 2306.3(3) shall only be permitted for structures assigned to Seismic Design Category A, B, or C.

Exception: Allowable shear values where panels are fastened to framing members with staples may be used if such values are substantiated by cyclic testing and approved by the building official.

The allowable shear values in Tables 2306.3(1) and 2306.3(2) are permitted to be increased 40 percent for wind design. Panels complying with ANSI/APA PRP-210 shall be permitted to use design values for Plywood Siding in the ANSI/AWC SDPWS. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.550 Add CBC Section 2307.2—Wood-frame shear walls.

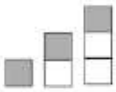
Section 2307.2 is added to the California Building Code to read as follows:

2307.2 Wood-frame shear walls. Wood-frame shear walls shall be designed and constructed in accordance with Section 2306.3 as applicable. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.560 Amend CBC Table 2308.10.1—Wall bracing requirements.

Table 2308.10.1 of the California Building Code is amended to read as follows:

TABLE 2308.10.1— WALL BRACING REQUIREMENTS[a]

SEISMIC DESIGN CATEGORY	STORY CONDITION (SEE SECTION 2308.2)	MAXIMUM SPACING OF BRACED WALL LINES	BRACED PANEL LOCATION, SPACING (O.C.) AND MINIMUM PERCENTAGE (X)			MAXIMUM DISTANCE OF BRACED WALL PANELS FROM EACH END OF BRACED WALL LINE
			Bracing method[b]			
			LIB	DWB, WSP	SFB, PBS, PCP, HPS, GB[c, d]	
A and B		35′- 0″	Each end and ≤ 25′- 0″ o.c.	Each end and ≤ 25′- 0″ o.c.	Each end and ≤ 25′- 0″ o.c.	12′- 6″
		35′- 0″	Each end and ≤ 25′- 0″ o.c.	Each end and ≤ 25′- 0″ o.c.	Each end and ≤ 25′- 0″ o.c.	12′- 6″
		35′- 0″	NP	Each end and ≤ 25′- 0″ o.c.	Each end and ≤ 25′- 0″ o.c.	12′- 6″
C		35′- 0″	NP	Each end and ≤ 25′- 0″ o.c.	Each end and ≤ 25′- 0″ o.c.	12′- 6″
		35′- 0″	NP	Each end and ≤ 25′- 0″ o.c. (minimum 25% of wall length)[e]	Each end and ≤ 25′- 0″ o.c. (minimum 25% of wall length)[e]	12′- 6″
D and E[f, g, h]		25′- 0″	NP	$S_{DS} < 0.50$: Each end and ≤ 25′- 0″ o.c. (minimum 21% of wall length)[e]	$S_{DS} < 0.50$: Each end and ≤ 25′- 0″ o.c. (minimum 43% of wall length)[e]	8′- 0″
				$0.5 \le S_{DS} < 0.75$: Each end and ≤ 25′- 0″ o.c. (minimum 32% of wall length)[e]	$0.5 \le S_{DS} < 0.75$: Each end and ≤ 25′- 0″ o.c. (minimum 59% of wall length)[e]	
				$0.75 \le S_{DS} \le 1.00$: Each end and ≤ 25′- 0″ o.c. (minimum 37% of wall length)[e]	$0.75 \le S_{DS} \le 1.00$: Each end and ≤ 25′- 0″ o.c. (minimum 75% of wall length)	
				$S_{DS} > 1.00$: Each end and ≤ 25′- 0″ o.c. (minimum 48% of wall length)[e]	$S_{DS} > 1.00$: Each end and ≤ 25′- 0″ o.c. (minimum 100% of wall length)[e]	

For SI: 1 inch = 25.4 mm, 1 foot = 304.8 mm.
NP = Not Permitted.

a. This table specifies minimum requirements for braced wall panels along interior or exterior braced wall lines.
b. See Section 2308.6.3 for full description of bracing methods.
c. For Method GB, gypsum wallboard applied to framing supports that are spaced at 16 inches on center.
d. The required lengths shall be doubled for gypsum board applied to only one face of a braced wall panel.
e. Percentage shown represents the minimum amount of bracing required along the building length (or wall length if the structure has an irregular shape).
f. DWB, SFB, PBS, and HPS wall braces are not permitted in Seismic Design Categories D or E.
g. Minimum length of panel bracing of one face of the wall for WSP sheathing shall be at least 4'-0" long or both faces of the wall for GB or PCP sheathing shall be at least 8'-0" long: h/w ratio shall not exceed 2:1. Wall framing to which sheathing used for bracing is applied shall be nominal 2 inch wide factual 1½-inch (38 mm) or larger members and spaced a maximum of 16 inches on center. Braced wall panel construction types shall not be mixed within a braced wall line.
h. WSP sheathing shall be a minimum of 15/32" thick nailed with 8d common placed ⅜ inches from panel edges and spaced not more than 6 inches on center and 12 inches on center along intermediate framing members.

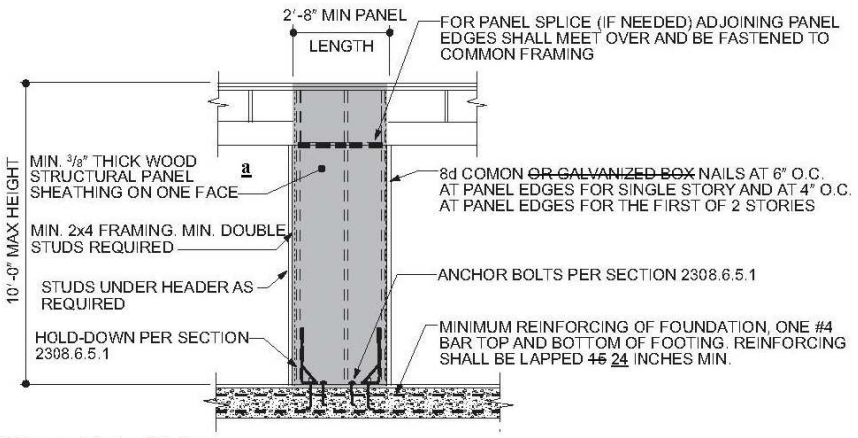
(ORD-25-0019 § 1(Exh. A), 2025)

18.40.570 Amend CBC Section 2308.10.5.1 and Figure 2308.10.5.1—Alternate braced wall (ABW).

Section 2308.10.5.1 and Figure 2308.10.5.1 of the California Building Code are amended to read as follows:

2308.10.5.1 Alternate braced wall (ABW). An ABW shall be constructed in accordance with this section and Figure 2308.10.5.1. In one-story buildings, each panel shall have a length of not less than 2 feet 8 inches (813 mm) and a height of not more than 10 feet (3,048 mm). Each panel shall be sheathed on one face with 3/8-inch (3.2 mm) minimum-thickness wood structural panel sheathing nailed with 8d common or galvanized box nails in accordance with Table 2304.10.1 and blocked at wood structural panel edges. For structures assigned to Seismic Design Category D or E, each panel shall be sheathed on one face with 15/32-inch-minimum-thickness (11.9 mm) wood structural panel sheathing nailed with 8d common nails spaced 3 inches on panel edges, 3 inches at intermediate supports. Two anchor bolts installed in accordance with Section 2308.7.1 shall be provided in each panel. Anchor bolts shall be placed at each panel outside quarter points. Each panel end stud shall have a hold-down device fastened to the foundation, capable of providing an approved uplift capacity of not less than 1,800 pounds (8,006 N). The hold-down device shall be installed in accordance with the manufacturer's recommendations. The ABW shall be supported directly on a foundation or on floor framing supported directly on a foundation that is continuous across the entire length of the braced wall line. This foundation shall be reinforced with not less than one No. 4 bar top and bottom. Where the continuous foundation is required to have a depth greater than 12 inches (305 mm), a minimum 12-inch by 12-inch (305 mm by 305 mm) continuous footing is permitted at door openings in the braced wall line. This continuous footing shall be reinforced with not less than one No. 4 bar top and bottom. This reinforcement shall be lapped 24 inches (610 mm) with the reinforcement required in the continuous foundation located directly under the braced wall line.

Where the ABW is installed at the first story of two-story buildings, the wood structural panel sheathing shall be provided on both faces, three anchor bolts shall be placed at one-quarter points and tie-down device uplift capacity shall be not less than 3,000 pounds (13,344 N).



For SI: 1 inch = 25.4 mm, 1 foot = 304.8 mm.

a. For structures assigned to Seismic Design Category D or E, sheathed on one face with 15/32-inch-minimum-thickness (11.9 mm) wood structural panel sheathing.

FIGURE 2308.10.5.1—ALTERNATE BRACED WALL PANEL (ABW)

(ORD-25-0019 § 1(Exh. A), 2025)

18.40.580 Amend CBC Section 2308.10.5.2 and Figure 2308.10.5.2—Portal frame with hold-downs (PFH).

Section 2308.10.5.2 and Figure 2308.10.5.2 of the California Building Code are amended to read as follows:

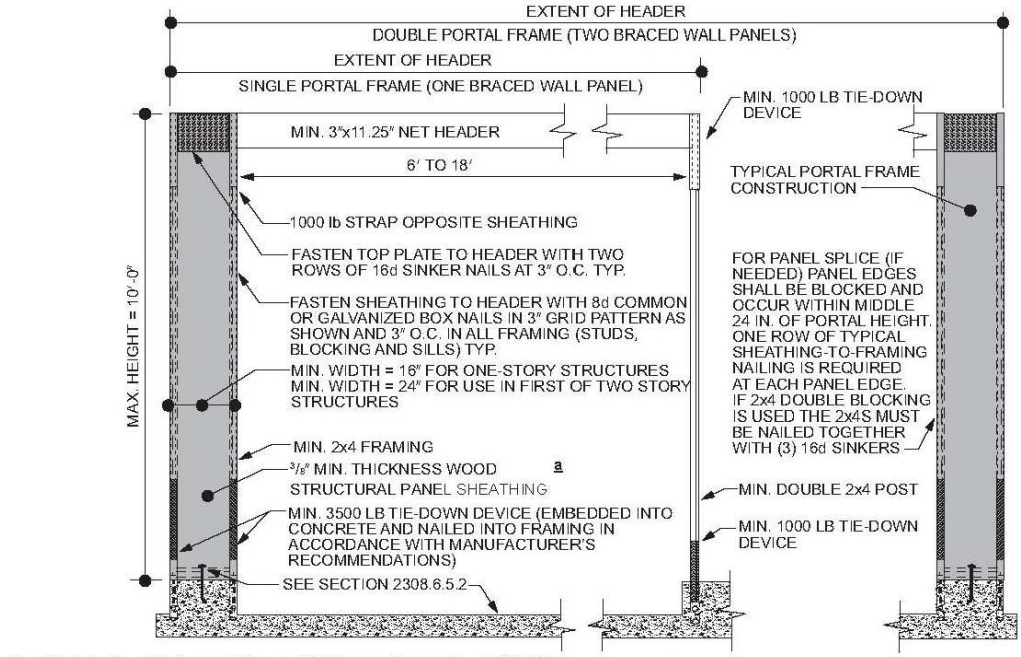
2308.10.5.2 Portal frame with hold-downs (PFH). A PFH shall be constructed in accordance with this section and Figure 2308.10.5.2. The adjacent door or window opening shall have a full-length header.

In one-story buildings, each panel shall have a length of not less than 16 inches (406 mm) and a height of not more than 10 feet (3,048 mm). Each panel shall be sheathed on one face with a single layer of 3/8-inch (9.5 mm) minimum-thickness wood structural panel sheathing nailed with 8d common or galvanized box nails in accordance with Figure 2308.10.5.2. For structures assigned to Seismic Design Category D or E, each panel shall be sheathed on one face with 15/32-inch minimum thickness (11.9 mm) wood structural panel sheathing nailed with 8d common nails spaced 3 inches on panel edges, 3 inches at intermediate supports and in accordance with Figure 2308.10.5.2. The wood structural panel sheathing shall extend up over the solid sawn or glued-laminated header and shall be nailed in accordance with Figure 2308.10.5.2. A built-up header consisting of at least two 2-inch by 12-inch (51 mm by 305 mm) boards, fastened in accordance with Item 26 of Table 2304.10.2 shall be permitted to be used. A spacer, if used, shall be placed on the side of the built-up beam opposite the wood structural panel sheathing. The header shall extend between the inside faces of the first full-length outer studs of each panel. The clear span of the header between the inner studs of each panel shall be not less than 6 feet (1,829 mm) and not more than 18 feet (5,486 mm) in length. A strap with an uplift capacity of not less than 1,000 pounds (4,400 N) shall fasten the header to the inner studs opposite the sheathing. One anchor bolt not less than 5/8-inch (15.9 mm) diameter and installed in accordance with Section 2308.7.1 shall be provided in the center of each sill plate. The studs at each end of the panel shall have a hold-down device fastened to the foundation with an uplift capacity of not less than 3,500 pounds (15,570 N).

Where a panel is located on one side of the opening, the header shall extend between the inside face of the first full-length stud of the panel and the bearing studs at the other end of the opening. A strap with an uplift capacity of not less than 1,000 pounds (4,400 N) shall fasten the header to the bearing studs. The bearing studs shall also have a hold-down device fastened to the foundation with an uplift capacity of not less than 1,000 pounds (4,400 N). The hold-down devices shall be an embedded strap type, installed in accordance with the manufacturer's recommendations. The PFH panels shall be supported directly on a foundation that is continuous across the entire length of the braced wall line. This foundation shall be reinforced with not less than one No. 4 bar top and bottom. Where the continuous foundation is required to have a depth greater than 12 inches (305 mm), a minimum 12-inch by 12-inch (305 mm by 305 mm) continuous footing is permitted at door openings in the braced wall line. This continuous footing shall be reinforced with not less than one No. 4 bar top and bottom. This reinforcement shall be lapped not less than 24 inches (610 mm) with the reinforcement required in the continuous foundation located directly under the braced wall line.

Where a PFH is installed at the first story of two-story buildings, each panel shall have a length of not less than 24 inches (610 mm).

FIGURE 2308.10.5.2—PORTAL FRAME WITH HOLD-DOWNS (PFH)



For SI: 1 inch = 25.4 mm, 1 foot = 304.8 mm, 1 pound = 4.448 N.

a. For structures assigned to Seismic Design Category D or E, sheathed on one face with 15/32-inch-minimum-thickness (11.9 mm) wood structural panel sheathing.

(ORD-25-0019 § 1(Exh. A), 2025)

18.40.590 Amend CBC Section 2308.10.8.1—Foundation requirements.

Section 2308.10.8.1 of the California Building Code is amended to read as follows:

2308.10.8.1 Foundation requirements. Braced wall lines shall be supported by continuous foundations.

Exception: For structures with a maximum plan dimension not over 50 feet (15,240 mm), continuous foundations are required at exterior walls only for structures assigned to Seismic Design Category A, B or C.

For structures in Seismic Design Categories D and E, exterior braced wall panels shall be in the same plane vertically with the foundation or the portion of the structure containing the offset shall be designed in accordance with accepted engineering practice and Section 2308.3. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.600 Amend CBC Section 2308.10.9—Attachment of sheathing.

Section 2308.10.9 of the California Building Code is amended to read as follows:

2308.10.9 Attachment of sheathing. Fastening of braced wall panel sheathing shall not be less than that prescribed in Tables 2308.10.1 or 2304.10.2. Wall sheathing shall not be attached to framing members by adhesives. Staple fasteners in Table 2304.10.2 shall not be used to resist or transfer seismic forces in structures assigned to Seismic Design Category D, E or F.

Exception: Staples may be used to resist or transfer seismic forces when the allowable shear values are substantiated by cyclic testing and approved by the Building Official.

All braced wall panels shall extend to the roof sheathing and shall be attached to parallel roof rafters or blocking above with framing clips (18 gauge minimum) spaced at a maximum of 24

inches (6,096 mm) on center with four 8d nails per leg (total eight 8d nails per clip, minimum). Braced wall panels shall be laterally braced at each top corner and at intervals not to exceed 24 inches (6,096 mm) along the top plate of discontinuous vertical framing. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.610 Amend CBC Section 2503.1—Inspection.

Section 2503.1 of the California Building Code is amended to read as follows:

2503.1 Inspection. Lath and gypsum panel products shall be inspected in accordance with Section 18.07.050 of the Long Beach Municipal Code. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.620 Amend CBC Section 3007.6.1—Access to interior exit stairway or ramp.

Section 3007.6.1 of the California Building Code is amended to read as follows:

3007.6.1 Access to interior exit stairway or ramp. The enclosed fire service access elevator lobby shall have direct access from the enclosed elevator lobby to a smokeproof enclosure with an interior exit stairway or ramp complying with Section 909.20.

Exception: Access to a smokeproof enclosure with an interior exit stairway or ramp shall be permitted to be through a protected path of travel that has a level of fire protection not less than the elevator lobby enclosure. The wall and floor/ceiling assemblies of the protected path shall comply with the requirements of Section 3007.6.2 and doors opening into the protected path shall comply with the requirements of Section 3007.6.3. The protected path shall be separated from the enclosed elevator lobby through an opening protected by a smoke and draft control assembly in accordance Section 716.2.2.1. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.630 Amend CBC Section 3114.1—General.

Section 3114.1 of the California Building Code is amended to read as follows:

3114.1 General. The provisions of Section 3114 and other applicable sections of this code shall apply to intermodal shipping containers that are repurposed for use as buildings or structures, or as a part of buildings or structures.

Exceptions:

1. Intermodal shipping containers previously approved as existing relocatable buildings complying with Chapter 14 of the California Existing Building Code.
2. Stationary battery storage arrays located in intermodal shipping containers complying with Chapter 12 of the California Fire Code.
3. Intermodal shipping containers that are listed as equipment complying with the standard for equipment, such as air chillers, engine generators, modular data centers, and other similar equipment.
4. Intermodal shipping containers housing or supporting experimental equipment are exempt from the requirements of Section 3114, provided they comply with all of the following:
   - 4.1. Such units will be single stand-alone units supported at grade level and used only for occupancies as specified under Risk Category I in Table 1604.5.
   - 4.2. Such units are located a minimum of 8 feet (2,438 mm) from adjacent structures, and are not connected to a fuel gas system or fuel gas utility.
   - 4.3. In hurricane-prone regions and flood hazard areas, such units are designed in accordance with the applicable provisions of Chapter 16.
5. [HCD] Shipping containers constructed or converted off-site that meet the definition of Factory-built Housing in Health and Safety Code Section 19971 or Commer-

cial Modular(s) as defined in Health and Safety Code Section 18001.8 shall be approved by the Department of Housing and Community Development.

6. Single-unit stand-alone intermodal shipping containers used as temporary storage or as construction trailers on active construction sites. Construction support facilities for uses and activities not directly associated with the actual processes of construction, including but not limited to, offices, meeting rooms, plan rooms, other administrative or support functions shall not be exempt from Section 3114. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.635 Amend CBC Section 3114.2—Construction documents.

Section 3114.2 of the California Building Code is amended to read as follows:

3114.2 Construction documents. The construction documents shall contain information to verify the dimensions and establish the physical properties of the steel components and wood floor components of the intermodal shipping container, in addition to the information required by Chapter 18.05 of the Long Beach Municipal Code and Section 1603. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.640 Amend CBC Section 3114.8.4.2—Seismic design parameters.

Section 3114.8.4.2 of the California Building Code is amended to read as follows:

3114.8.4.2 Seismic design parameters. The seismic force-resisting system shall be designed and detailed in accordance with ASCE 7 and one of the following:

1. Where all or portions of the profiled steel panel elements are considered to be the seismic force-resisting system, design and detailing shall be in accordance with AISI S100 and ASCE 7, Table 12.2-1 requirements for steel systems not specifically detailed for seismic resistance, excluding cantilevered column systems.

2. Where all or portions of the profiled steel panel elements are not considered to be part of the seismic force-resisting system, an independent seismic force-resisting system shall be selected and detailed in accordance with ASCE 7 Table 12.2-1.

3. Where all or portions of the profiled steel elements are retained and integrated into a seismic force-resisting system other than as permitted by Section 3115.8.4.2 Item 1, seismic design parameters shall be developed from testing and analysis in accordance with Section 18.03.060 of the Long Beach Municipal Code and ASCE 7, Section 12.2.1.1 or 12.2.1.2. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.650 Amend CBC Section G101.3—Flood hazard scope.

Section G101.3 of the California Building Code is amended to read as follows:

G101.3 Scope. The provision of this appendix shall apply to all proposed development in a flood hazard area established in Section 1612 of this code, including certain building work exempt from permit under Section 18.04.020 of the Long Beach Municipal Code. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.660 Amend CBC Section G101.4—Flood hazard violation.

Section G101.4 of the California Building Code is amended to read as follows:

G101.4 Violations. Any violation of a provision of this appendix, or failure to comply with a permit or variance issued pursuant to this appendix or any requirement of this appendix, shall be handled in accordance with Chapter 18.09 of the Long Beach Municipal Code. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.670 Amend CBC Section G101.5—Flood hazard designation of local floodplain administrator.

Section G101.5 of the California Building Code is amended to read as follows:

G101.5 Designation of local floodplain administrator. The Building Official and City Engineer are hereby designated to administer and imple-

ment this appendix by granting or denying permits in accordance with its provisions and the Long Beach Municipal Code. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.680 Add CBC Section G101.6—Flood hazard disclaimer of liability.

Section G101.6 is added to the California Building Code to read as follows:

G101.6 Warning and disclaimer of liability. The degree of flood protection required by this appendix is considered reasonable for regulatory purposes and is based on scientific and engineering considerations. Larger floods can and will occur on occasion. Flood heights may be increased by manmade or natural causes. This appendix does not imply that land outside areas of special flood hazards or uses permitted within such areas will be free from flooding or flood damages. This appendix shall not create liability on the part of the City of Long Beach, any officer or employee thereof, the State of California, the Federal Insurance Administration, or the Federal Emergency Management Agency, for any flood damage that results from reliance on this appendix or any administrative decision made hereunder. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.690 Amend CBC Section G102.1—Flood hazard general definitions.

The first sentence of Section G102.1 of the California Building Code is amended to read as follows:

G201.1 General. The following words and terms shall, for the purpose of this appendix, have the meanings shown herein. Refer to Chapter 2 of this code or Chapter 18.02 of the Long Beach Municipal Code for general definitions. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.700 Amend CBC Section G103.1—Flood hazard general.

Item 10 of Section G103.1 of the California Building Code is amended to read as follows:

10. Certain building work exempt from permit under Section 18.04.020 of the Long Beach Municipal Code and other buildings and development activities. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.710 Amend CBC Section G103.2—Flood hazard establishment.

Section G103.2 of the California Building Code is amended to read as follows:

G103.2 Establishment of flood hazard areas. Flood hazard areas are established in Section 1612.3 of this code and by the Federal Insurance Administration of the Federal Emergency Management Agency (FEMA), in a scientific and engineering report entitled "The Flood Insurance Study for the City of Long Beach", dated July 6, 1998, with accompanying Flood Insurance Rate Map (FIRMs), and all subsequent amendments and/or revisions, are hereby adopted by reference and declared to be a part of this appendix. This flood insurance study and attendant mapping is the minimum area of applicability of this appendix and may be supplemented by studies for other areas which allow implementation of this appendix and which are recommended to the City Council by the City Engineer. The Flood Insurance Study and FIRMs are on file in the office of the Department of Public Works, 411 West Ocean Boulevard, Long Beach, California 90802. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.720 Add CBC Section G103.3—Flood hazard interpretation of FIRM boundaries.

Section G103.3 is added to the California Building Code to read as follows:

G103.3 Interpretation of FIRM boundaries. The City Engineer shall make interpretations where needed as to the exact location of the boundaries of flood hazard areas where there appears to be a conflict between a mapped boundary and actual field conditions. The applicant contesting the boundaries shall be given a reasonable opportunity to appeal the interpretation as provided for in Section G106. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.730 Amend CBC Section G104.3—Flood hazard determination of design flood elevation.

Item 2 of Section G104.3 of the California Building Code is amended to read as follows:

2. Determine the design flood elevation in accordance with accepted hydrologic and hydraulic engineering techniques. Such analyses shall be performed and sealed by a registered design professional. Studies, analyses, and computations shall be submitted in sufficient detail to allow review and approval by the City Engineer. The accuracy of data submitted for such determination shall be the responsibility of the applicant. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.740 Amend CBC Section G104.5—Flood hazard floodway encroachment.

Section G104.5 of the California Building Code is amended to read as follows:

G104.5 Floodway encroachment. Prior to issuing a permit for any floodway encroachment, including fill, new construction, substantial improvements and other development or land-disturbing activity, the City Engineer shall require submission of a certification, prepared by a registered design professional, along with supporting technical data, demonstrating that such development will not cause any increase of the base flood level. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.750 Amend CBC Sections G104.6 and G104.6.1—Flood hazard watercourse alteration and engineering analysis.

Sections G104.6 and G104.6.1 of the California Building Code are amended to read as follows:

G104.6 Watercourse alteration. Prior to issuing of a permit for any alteration or relocation of any watercourse, the City Engineer shall provide notification of the proposal to the appropriate authorities of all adjacent government jurisdictions, as well as the California Department of Water Resources. A copy of the notification shall be maintained in the permit records and submitted to FEMA.

G104.6.1 Engineering analysis. The City Engineer shall require submission of an engineering analysis, prepared by a registered design professional, demonstrating that the flood-carrying capacity of the altered or relocated portion of the watercourse will not be decreased. Such watercourses shall be maintained in a manner that preserves the channel's flood-carrying capacity. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.760 Amend CBC Section G104.7—Flood hazard alterations in coastal areas.

Section G104.7 of the California Building Code are amended to read as follows:

G104.7 Alterations in coastal areas. Prior to issuing a permit for any alteration of sand dunes and mangrove stands in coast high-hazard areas and coastal A zones, the City Engineer shall require submission of an engineering analysis, prepared by a registered design professional, demonstrating that the proposed alteration will not increase the potential for flood damage. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.770 Add CBC Section G104.11—Flood hazard letter of map revision.

Section G104.11 is added to the California Building Code to read as follows:

G104.11 Letter of Map Revision. Within 6 months of information becoming available or project completion, whichever comes first, the City Engineer shall submit technical or scientific data to FEMA for a Letter of Map Revision pursuant to the requirement of Part 65 and 65.3 of Title 44 of the Code of Federal Regulations. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.780 Amend CBC Section G105.4—Flood hazard expiration.

Section G105.4 of the California Building Code is amended to read as follows:

G105.4 Expiration. Section 18.04.060 of the Long Beach Municipal Code shall govern when a

permit becomes invalid or expired. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.790 Amend CBC Section G106.1—Flood hazard general variance.

Section G106.1 of the California Building Code is amended to read as follows:

G106.1 General. The Board of Examiners, Appeals and Condemnation (hereinafter referred to as "board of appeals" in this appendix) established pursuant to Chapter 18.10 of the Long Beach Municipal Code shall hear and decide requests for variances. The board of appeals shall base its determination on technical justifications and has the right to attach such conditions to variances as it deems necessary to further the purposes and objectives of this appendix and Section 1612.

Any person aggrieved by the decision of the board of appeal may, within ten (10) days from the date the aggrieved party is notified in writing of the decision, appeal such decision to the City Council by filing a written notice thereof with the City Clerk. The City Council's decision shall be reduced to writing and shall be served by mail on the aggrieved party within ten (10) days after all evidence has been received by the City Council. Upon consideration of the factors of Section G106.6 and the purposes of this appendix, the City Council may attach such conditions to the granting of variances as it deems necessary to further the purposes of this appendix. The decision of the City Council shall be final. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.800 Amend CBC Section G106.2—Flood hazard records.

Section G106.2 of the California Building Code is amended to read as follows:

G106.2 Records. The Building Official shall maintain a permanent record of all variance actions, including justification for their issuance. The City Engineer shall report any variances issued in its report submitted to FEMA. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.810 Amend CBC Section G106.7—Flood hazard conditions for issuance.

Item 5 of Section G106.7 of the California Building Code is amended to read as follows:

5. Notification to the applicant in writing over the signature of the Building Official that the issuance of a variance to construct a structure below the base flood level will result in increased premium rates for flood insurance up to amounts as high as $25 for $100 of insurance coverage, and that such construction below the base flood level increases risks to life and property. Prior to the issuance of a permit, a copy of the notice shall be recorded by the applicant in the Office of the Los Angeles County Recorder and shall be recorded in a manner so that it appears in the chain of title of the affected parcel of land. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.820 Add CBC Section 3109.2.1—Required enclosure.

Section 3109.2.1 is added to Chapter 31 of the California Building Code to read as follows:

3109.2.1 Required enclosure. A permanent enclosure preventing direct access to a swimming pool and/or spa shall be provided as one of the two drowning safety features required by the Swimming Pool Safety Act Section 115922(a) of the California Health and Safety Code.

Where the permanent enclosure includes an exterior wall of the residence and/or accessory structures including but not limited to garages, sheds, pool houses and accessory dwellings units, any doors opening directly into the enclosed area shall be provided with a self-closing, self-latching device with a release mechanism placed not lower than 54 inches above the interior finished floor or a permanent exit alarm. (ORD-25-0019 § 1(Exh. A), 2025)

18.40.830 Add CBC Section 3109.2.2—Access gates.

Section 3109.2.2 is added to Chapter 31 of the California Building Code to read as follows:

3109.2.2 Access gates. Access gates shall comply with the requirements of the Swimming Pool

Safety Act Section 115923(a) of the California Health and Safety Code. The access gate shall not exceed 48 inches in width. (ORD-25-0019 § 1(Exh. A), 2025)

CHAPTER 18.41 RESIDENTIAL CODE*

18.41.010 Adoption of California Residential Code.

The City Council adopts and incorporates by reference as though set forth in full in this chapter the 2025 Edition of the California Residential Code (herein referred to as the "California Residential Code"). The California Residential Code is Part 2.5 of the California Code of Regulations, Title 24, also referred to as the California Building Standards Code. This part is based on the provisions of the 2024 Edition of the International Residential Code (herein referred to as the "International Residential Code") as developed by the International Code Council with necessary California amendments. The following appendices of the California Residential Code are included: Appendices BB, BF, CI, and CJ. The following sections, chapters, parts or appendices of the California Residential Code are deleted: Sections R101 through R114 of Chapter 1, Division II; Parts IV through VIII; and Appendices AA through AC, BA, BC through BE, BG through BO, CA through CH, and CK.

The adoption of the California Residential Code is subject to the changes, amendments and modifications to said code as provided in this chapter, and certain provisions of the Long Beach Municipal Code, which shall remain in full force and effect as provided in this title. Such codes and code provisions shall constitute and be known as the Long Beach Residential Code. A copy of the California Residential Code, printed as code in book form, shall be on file in the Office of the City Clerk. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

***Editor's note**—ORD-19-0031 § 1(Exh. A), adopted Nov. 19, 2019, amended Ch. 18.41 in its entirety to read as herein set out. Former Ch. 18.41, §§ 18.41.010—18.41.250, pertained to similar subject matter, and derived from ORD-16-0026 § 1(Exh. A), 2016.

18.41.020 Amend CRC Section 201.4—Terms not defined.

Section R201.4 of the California Residential Code is amended to read as follows:

R201.4 Terms not defined. Where terms are not defined through the methods authorized by this section, such terms shall have ordinarily accepted meanings such as the context implies. Webster's Third New International Dictionary of the English Language, Unabridged, shall be considered as providing ordinarily accepted meanings. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.030 Amend CRC Section R301.1.3.2—Woodframe structures.

Section R301.1.3.2 of the California Residential Code is amended to read as follows:

R301.1.3.2 Woodframe structures. The Building Official shall require construction documents to be approved and stamped by a California licensed architect or engineer for all dwellings of woodframe construction more than two stories and basement in height located in Seismic Design Category A, B or C. Notwithstanding other sections the law, the law establishing these provisions is found in Business and Professions Code Section 5537 and 6737.1.

The Building Official shall require construction documents to be approved and stamped by a California licensed architect or engineer for all dwellings of woodframe construction more than one story in height or with a basement located in Seismic Design Category D_0, D_1, D_2 or E. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.040 Amend CRC Table R301.2 and footnote g—Climatic and Geographic Design Criteria.

Table R301.2 and footnote g of the California Residential Code are amended to read as follows:

TABLE R301.2
CLIMATIC AND GEOGRAPHIC DESIGN CRITERIA

GROUND SNOW LOAD	WIND DESIGN				SEISMIC DESIGN CATEGORY[f]	SUBJECT TO DAMAGE FROM			WINTER DESIGN TEMP[e]	ICE BARRIER UNDER-LAYMENT REQUIRED[h]	FLOOD HAZ-ARDS[g]	AIR FREEZING INDEX[i]	MEAN ANNUAL TEMP[j]
	Speed[d] (mph)	Topo-graphic effects[k]	Special wind region[l]	Wind-borne debris zone[m]		Weathering[a]	Frost line Depth[b]	Termite[c]					
Zero	95	No	Yes	No	D_2 or E	Negligible	12" - 24"	Very heavy	43	No	Yes	0	60

g. The flood hazard map shall include, at a minimum, areas of special flood hazard as identified by the Federal Emergency Management Agency in a scientific and engineering report entitled "The Flood Insurance Study for the City of Long Beach" dated July 6, 1998, as amended or revised with the accompanying Flood Insurance Rate Map (FIRM) and Flood Boundary and Floodway Map (FBFM) and related supporting data along with any revisions thereto. This flood insurance study and attendant mapping is the minimum area of applicability of this code and may be supplemented by studies for other areas which allow implementation of this code and which are recommended to the City Council by the City Engineer. The Flood Insurance Study and FIRMs are on file in the office of the Department of Public Works, 411 West Ocean Boulevard, Long Beach, California 90802.

(ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.050 Amend CRC Section R301.2.2.6—Irregular buildings.

Items 1, 3 and 5 of Section R301.2.2.6 of the California Residential Code are amended to read as follows, including the removal of the exception in each of the items:

1. Shear wall or braced wall offsets out of plane. Conditions where exterior shear wall lines or braced wall panels are not in one plane vertically from the foundation to the uppermost story in which they are required.

3. Shear wall or braced wall offsets in plane. Conditions where the end of a braced wall panel occurs over an opening in the wall below.

5. Floor level offset. Conditions where portions of a floor level are vertically offset. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.060 Add CRC Section R301.2.2.11—Anchorage of Mechanical, Electrical, or Plumbing Components and Equipment.

Section R301.2.2.11 is added to Chapter 3 of the California Residential Code to read as follows:

R301.2.2.11 Anchorage of Mechanical, Electrical, or Plumbing Components and Equipment. Mechanical, electrical, or plumbing components and equipment shall be anchored to the structure. Anchorage of the components and equipment shall be designed to resist loads in accordance with the California Building Code and ASCE 7, except where the component is positively attached to the structure and flexible connections are provided between the component and associated ductwork, piping, and conduit; and either:

1. The component weighs 400 lb (1,780 N) or less and has a center of mass located 4 ft (1.22 m) or less above the supporting structure; or

2. The component weighs 20 lb (89 N) or less or, in the case of a distributed system, 5 lb/ft (73 N/m) or less. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.070 Amend CRC Section R308.1—Address identification.

Section R308.1 of the California Residential Code is amended to read as follows:

R308.1 Address identification. Buildings and structures shall be provided with an approved address identification and number in accordance with Chapter 18.11 of the Long Beach Municipal Code. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.080 Amend CRC Section R401.1—Application.

Section R401.1 of the California Residential Code is amended to read as follows:

R401.1 Application. The provisions of this chapter shall control the design and construction

of the foundation and foundation spaces for buildings. In addition to the provisions of this chapter, the design and construction of foundations in flood hazard areas as established by Table R301.2 shall meet the provisions of Section R306. Wood foundations shall be designed and installed in accordance with AWC PWF.

Exception: The provisions of this chapter shall be permitted to be used for wood foundations only in the following situations:

1. In buildings that have no more than two floors and a roof.

2. When interior basement and foundation walls are constructed at intervals not exceeding 50 feet (15,240 mm).

Wood foundations in Seismic Design Category D_0, D_1 or D_2 shall not be permitted.

Exception: In non-occupied, single-story, detached storage sheds and similar uses other than carport or garage, provided the gross floor area does not exceed 200 square feet, the plate height does not exceed 12 feet in height above the grade plane at any point, and the maximum roof projection does not exceed 24 inches. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.090 Amend CRC Section R403.1.2—Continuous footing in Seismic Design Categories D_0, D_1 and D_2.

Section R403.1.2 of the California Residential Code is amended to read as follows:

R403.1.2 Continuous footing in Seismic Design Categories D_0, D_1 and D_2. Exterior walls and required interior braced wall panels of buildings located in Seismic Design Categories D_0, D_1 and D_2 shall be supported by continuous solid or fully grouted masonry or concrete footings in accordance with Table R403.1.2. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.100 Amend CRC Section R403.1.3.6—Isolated concrete footings.

Section R403.1.3.6 of the California Residential Code is amended to read as follows:

R403.1.3.6 Isolated concrete footings. In detached one- and two-family dwellings located in Seismic Design Category A, B or C that are three stories or less in height and constructed with stud bearing walls, plain concrete footings without longitudinal reinforcement supporting walls and isolated plain concrete footings supporting columns or pedestals are permitted. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.110 Amend CRC Section R403.1.5—Slope.

Section R403.1.5 of the California Residential Code is amended to read as follows:

R403.1.5 Slope. The top surface of footings shall be level. The bottom surface of footings shall be permitted to have a slope not exceeding one unit vertical in 10 units horizontal (10-percent slope). Footings shall be stepped where it is necessary to change the elevation of the top surface of the footing or where the surface of the ground slopes more than one unit vertical in 10 units horizontal (10-percent slope).

For structures located in Seismic Design Categories D_0, D_1 or D_2, stepped footings shall be reinforced with four ½-inch diameter (12.7 mm) deformed reinforcing bars. Two bars shall be place at the top and bottom of the footings as shown in Figure R403.1.5.

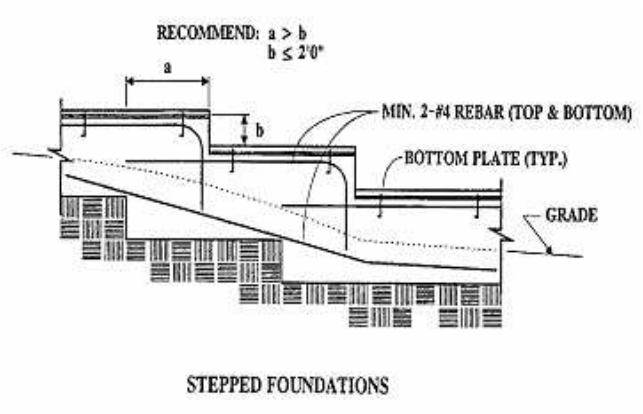


FIGURE R403.1.5
STEPPED FOOTING

(ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.120 Amend CRC Section R404.2—Wood foundation walls.

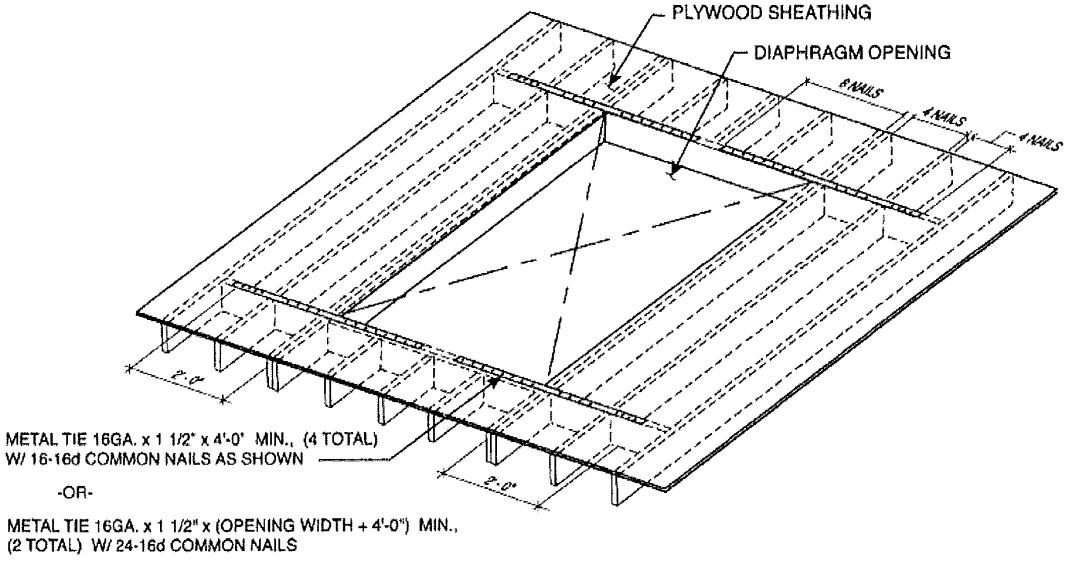
Section R404.2 of the California Residential Code is amended to read as follows:

R404.2 Wood foundation walls. Wood foundation walls shall be constructed in accordance with the provisions of Sections R404.2.1 through R404.2.6 and with the details shown in Figures R403.1(2) and R403.1(3). Wood foundation walls shall not be used for structures located in Seismic Design Category D_0, D_1 or D_2. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.130 Add CRC Section R503.2.4—Openings in horizontal diaphragms.

Section R503.2.4 is added to Chapter 5 of the California Residential Code to read as follows:

R503.2.4 Openings in horizontal diaphragms. Openings in horizontal diaphragms with a dimension perpendicular to the joist that is greater than 4 feet (1.2 m) shall be constructed in accordance with Figure R503.2.4.



For SI: 1 inch = 25.4 mm, 1 foot = 304.8 mm.

FIGURE R503.2.4
OPENINGS IN HORIZONTAL DIAPHRAGMS

a. Blockings shall be provided beyond headers.

b. Metal ties not less than 0.058 inch [1.47 mm (16 galvanized gage)] by 1.5 inches (38 mm) wide with eight 16d common nails on each side of the header-joist intersection. The metal ties shall have a minimum yield of 33,000 psi (227 MPa).

c. Openings in diaphragms shall be further limited in accordance with Section R301.2.2.2.6.

(ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.140 Amend CRC Table R602.3(1)—Fastening schedule.

Footnote j is added to Lines 20, 21, 24, 34, 35, 36, and 37 of Table R602.3(1) of the California Residential Code to read as follows:

TABLE R602.3(1)
FASTENING SCHEDULE

ITEM	DESCRIPTION OF BUILDING ELEMENTS	NUMBER AND TYPE OF FASTENER[a, b, c]	SPACING AND LOCATION	
20[j]	1" x 6" sheathing to each bearing	3-8d box (2½" x 0.113"); or 2-8d common (2½" x 0.131"); or 2-10d box (3" x 0.128"); or 2 staples, 1" crown, 16 ga., 1¾" long	Face nail	
21[j]	1" x 8" and wider sheathing to each bearing	3-8d box (2½" x 0.113"); or 3-8d common (2½" x 0.131"); or 3-10d box (3" x 0.128"); or 3 staples, 1" crown, 16 ga., 1¾" long	Face nail	
		Wider than 1" x 8" 4-8d box (2½" x 0.113"); or 3-8d common (2½" x 0.131"); or 3-10d box (3" x 0.128"); or 4 staples, 1" crown, 16 ga., 1¾" long		
Floor				
24[j]	1" x 6" subfloor or less to each joist	3-8d box (2½" x 0.113"); or 2-8d common (2½" x 0.131"); or 3-10d box (3" x 0.128"); or 2 staples, 1" crown, 16 ga., 1¾" long	Face nail	
Other wall sheathing[g]				
34[j]	½" structural cellulosic fiberboard sheathing	1½" galvanized roofing nail, $^{7}/_{16}$" head diameter, or 1¼" long 16 ga. staple with $^{7}/_{16}$" or 1" crown	3	6
35[j]	$^{25}/_{32}$" structural cellulosic fiberboard sheathing	1¾" galvanized roofing nail, $^{7}/_{16}$" head diameter, or 1½" long 16 ga. staple with $^{7}/_{16}$", or 1" crown	3	6
36[j]	½" gypsum sheathing[d]	1 ½" x 0.120" galvanized roofing nail, $^{7}/_{16}$" head diameter, or 1¼" long, 16 ga.; staple galvanized, 1½" long; $^{7}/_{16}$" or 1" crown or 1¼" screws, Type W or S	7	7
37[j]	⅝" gypsum sheathing[d]	1 ¾" x 0.120" galvanized roofing nail, $^{7}/_{16}$" head diameter, or 1¼" long, 16 ga.; staple galvanized, 1½" long; $^{7}/_{16}$" or 1" crown or 1¼" screws, Type W or S	7	7

j. Use of staples in roof, floor, and braced wall panels shall be prohibited in Seismic Design Category D_0, D_1, or D_2.

(ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.150 Amend CRC Section R602.3.2 and Table R602.3.2—Top plate.

Exception in Section R602.3.2 and Table R602.3.2 of the California Residential Code are amended to read as follows:

Exception: In other than Seismic Design Category D_0, D_1 or D_2, a single top plate used as an alternative to a double top plate shall comply with the following:

1. The single top plate shall be tied at corners, intersecting walls, and at in-line splices in straight wall lines in accordance with Table R602.3.2.

2. The rafters or joists shall be centered over the studs with a tolerance of not more than 1 inch (25 mm).

3. Omission of the top plate is permitted over headers where the headers are adequately tied to adjacent wall sections in accordance with Table R602.3.2.

TABLE R602.3.2
SINGLE TOP-PLATE SPLICE CONNECTION DETAILS

CONDITION	TOP-PLATE SPLICE LOCATION			
	Corners and intersecting walls		Butt joints in straight walls	
	Splice plate size	Minimum nails each side of joint	Splice plate size	Minimum nails each side of joint
Structures in SDC A-C	3" x 6" x 0.036" galvanized steel plate or equivalent	(6) 8d box (2½" x 0.113") nails	3' x 12" x 0.036" galvanized steel plate or equivalent	(12) 8d box (2½" x 0.113") nails

For SI: 1 inch = 25.4 mm, 1 foot = 304.8 mm.

(ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.160 Amend CRC Table R602.3(2)—Alternate attachments to CRC Table R602.3(1).

Footnote b of Table R602.3(2) of the California Residential Code is amended to read as follows:

b. Staples shall have a minimum crown width of 7/16-inch on diameter except as noted. Use of staples in roof, floor, subfloor, and braced wall panels shall be prohibited in Seismic Design Category D_0, D_1, or D_2.

(ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.170 Amend CRC Section R602.10.2.3—Minimum number of braced wall panels.

Section R602.10.2.3 of the California Residential Code is amended to read as follows:

R602.10.2.3 Minimum number of braced wall panels. Braced wall lines with a length of 16 feet (4,877 mm) or less shall have not less than two braced wall panels of any length or one braced wall panel equal to 48 inches (1,219 mm) or more. Braced wall lines greater than 16 feet (4,877 mm) shall have not less than two braced wall panels. In Seismic Design Category D_0, D_1, or D_2, no braced wall panel shall have a contributing length less than 48 inches in length or as required in Section R602.10.3, whichever is greater.

(ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.180 Amend CRC Table R602.10.3(3)—Bracing requirements based on Seismic Design Category.

Table R602.10.3(3) of the California Residential Code is amended to read as follows:

TABLE R602.10.3(3)
BRACING REQUIREMENTS BASED ON SEISMIC DESIGN CATEGORY

TABLE R602.10.3(3)
BRACING REQUIREMENTS BASED ON SEISMIC DESIGN CATEGORY

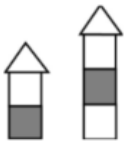
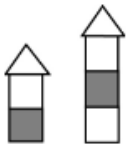
• WALL HEIGHT = 10 FEET • 10 PSF FLOOR DEAD LOAD • 15 PSF ROOF/CEILING DEAD LOAD • BRACED WALL LINE SPACING ≤ 25 FEET			MINIMUM TOTAL LENGTH (FEET) OF BRACED WALL PANELS REQUIRED ALONG EACH BRACED WALL LINE[a, g]				
Seismic Design Category[b]	Story Location	Braced Wall Line Length (feet)[c]	Method LIB[d]	Method GB	Methods DWB, SFB, PBS, PCP, HPS, CS-SFB[e]	Methods WSP, ABW[f], PFH[f] and PFG[e, f]	Methods CS-WSP, CS-G, CS-PF
C (townhouses only)		10	2.5	2.5	2.5	1.6	1.4
		20	5.0	5.0	5.0	3.2	2.7
		30	7.5	7.5	7.5	4.8	4.1
		40	10.0	10.0	10.0	6.4	5.4
		50	12.5	12.5	12.5	8.0	6.8
		10	NP	4.5	4.5	3.0	2.6
		20	NP	9.0	9.0	6.0	5.1
		30	NP	13.5	13.5	9.0	7.7
		40	NP	18.0	18.0	12.0	10.2
		50	NP	22.5	22.5	15.0	12.8
		10	NP	6.0	6.0	4.5	3.8
		20	NP	12.0	12.0	9.0	7.7
		30	NP	18.0	18.0	13.5	11.5
		40	NP	24.0	24.0	18.0	15.3
		50	NP	30.0	30.0	22.5	19.1
D_0		10	NP	5.6	5.6	1.8	1.6
		20	NP	11.0	11.0	3.6	3.1
		30	NP	16.6	16.6	5.4	4.6
		40	NP	22.0	22.0	7.2	6.1
		50	NP	27.6	27.6	9.0	7.7
		10	NP	NP	NP	3.8	3.2
		20	NP	NP	NP	7.5	6.4
		30	NP	NP	NP	11.3	9.6
		40	NP	NP	NP	15.0	12.8
		50	NP	NP	NP	18.8	16.0
		10	NP	NP	NP	5.3	4.5
		20	NP	NP	NP	10.5	9.0
		30	NP	NP	NP	15.8	13.4
		40	NP	NP	NP	21.0	17.9
		50	NP	NP	NP	26.3	22.3

TABLE R602.10.3(3)—(continued)
BRACING REQUIREMENTS BASED ON SEISMIC DESIGN CATEGORY

TABLE R602.10.3(3)—continued
BRACING REQUIREMENTS BASED ON SEISMIC DESIGN CATEGORY

• WALL HEIGHT = 10 FEET • 10 PSF FLOOR DEAD LOAD • 15 PSF ROOF/CEILING DEAD LOAD • BRACED WALL LINE SPACING ≤ 25 FEET			MINIMUM TOTAL LENGTH (FEET) OF BRACED WALL PANELS REQUIRED ALONG EACH BRACED WALL LINE[a, g]				
Seismic Design Category[b]	Story Location	Braced Wall Line Length (feet)[c]	Method LIB[d]	Method GB	Methods DWB, SFB, PBS, PCP, HPS, CS-SFB[e]	Methods WSP, ABW[f], PFH[f] and PFG[e, f]	Methods CS-WSP, CS-G, CS-PF
D_1		10	NP	6.0	6.0	2.0	1.7
		20	NP	12.0	12.0	4.0	3.4
		30	NP	18.0	18.0	6.0	5.1
		40	NP	24.0	24.0	8.0	6.8
		50	NP	30.0	30.0	10.0	8.5
		10	NP	NP	NP	4.5	3.8
		20	NP	NP	NP	9.0	7.7
		30	NP	NP	NP	13.5	11.5
		40	NP	NP	NP	18.0	15.3
		50	NP	NP	NP	22.5	19.1
		10	NP	NP	NP	6.0	5.1
		20	NP	NP	NP	12.0	10.2
		30	NP	NP	NP	18.0	15.3
		40	NP	NP	NP	24.0	20.4
		50	NP	NP	NP	30.0	25.5
D_2[h]		10	NP	8.0	8.0	2.5	2.1
		20	NP	16.0	16.0	5.0	4.3
		30	NP	24.0	24.0	7.5	6.4
		40	NP	32.0	32.0	10.0	8.5
		50	NP	40.0	40.0	12.5	10.6
		10	NP	NP	NP	5.5	4.7
		20	NP	NP	NP	11.0	9.4
		30	NP	NP	NP	16.5	14.0
		40	NP	NP	NP	22.0	18.7
		50	NP	NP	NP	27.5	23.4
	Three-story dwelling	10	NP	NP	NP	NP	NP
		20	NP	NP	NP	NP	NP
		30	NP	NP	NP	NP	NP
		40	NP	NP	NP	NP	NP
		50	NP	NP	NP	NP	NP
	Cripple wall below one- or two-story dwelling	10	NP	NP	NP	7.5	6.4
		20	NP	NP	NP	15.0	12.8
		30	NP	NP	NP	22.5	19.1
		40	NP	NP	NP	30.0	25.5
		50	NP	NP	NP	37.5	31.9

a. Linear interpolation shall be permitted.
b. Interpolation of bracing length between the Sds values associated with the seismic design categories shall be permitted when a site-specific Sds value is determined in accordance with Section 1613.2 of the California Building Code.
c. Where the braced wall line length is greater than 50 feet, braced wall lines shall be permitted to be divided into shorter segments having lengths of 50 feet or less, and the amount of bracing within each segment shall be in accordance with this table.
d. Method LIB shall have gypsum board fastened to not less than one side with nails or screws in accordance with Table R602.3(1) for exterior sheathing or Table R702.3.5 for interior gypsum board. Spacing of fasteners at panel edges shall not exceed 8 inches.
e. Methods PFG and CS-SFB do not apply in Seismic Design Categories D0, D1 and D2.
f. Methods PFH, PFG and ABW are only permitted on a single story or a first of two stories.
g. Where more than one bracing method is used, mixing methods shall be in accordance with Section R602.10.4.1.

h. One- and two-family dwellings in Seismic Design Category D_2 exceeding two stories shall be designed in accordance with accepted engineering practice.

i. Methods GB and PCP braced wall panel h/w ratio shall not exceed 1:1 in SDC D0, D1 and D2. Methods DWB, SFB, PBS, HPS, and CS-SFB are not permitted in D0, D1 and D2.

(ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.190 Amend CRC Table R602.10.4—Bracing methods.

Table R602.10.4 of the California Residential Code is amended to read as follows:

TABLE R602.10.4
BRACING METHODS

TABLE R602.10.4
BRACING METHODS[f,g]

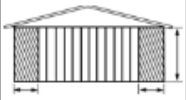
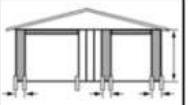
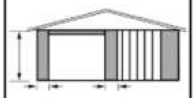
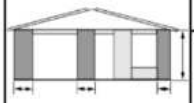
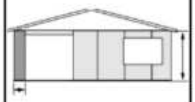
	METHODS, MATERIAL	MINIMUM THICKNESS	FIGURE	CONNECTION CRITERIA[a]	
				Fasteners	Spacing
Intermittent Bracing Methods	**LIB** Let-in-bracing	1 × 4 wood or approved metal straps at 45° to 60° angles for maximum 16″ stud spacing		Wood: 2-8d common nails or 3-8d ($2^1/_2$″ long × 0.113″ dia.) nails	Wood: per stud and top and bottom plates
				Metal strap: per manufacturer	Metal: per manufacturer
	DWB Diagonal wood boards	$^3/_4$″ (1″ nominal) for maximum 24″ stud spacing		2-8d ($2^1/_2$″ long × 0.113″ dia.) nails or 2-$1^3/_4$″ long staples	Per stud
	WSP Wood structural panel (See Section R604)	$^3/_8$″		8d common (2 1/2"x0.131) nails 3/8" edge distance to panel edge	6″ edges 12″ field
				8d common (2 1/2"x0.131) nails 3/8" edge distance to panel edge	Varies by fastener
	BV-WSP[c] Wood structural panels with stone or masonry veneer (See Section R602.10.6.5)	$^7/_{16}$″	See Figure R602.10.6.5.2	8d common ($2^1/_2$″ × 0.131) nails	4″ at panel edges 12″ at intermediate supports 4″ at braced wall panel end posts
	SFB Structural fiberboard sheathing	$^1/_2$″ or $^{25}/_{32}$″ for maximum 16″ stud spacing		$1^1/_2$″ long × 0.12″ dia. (for $^1/_2$″ thick sheathing) $1^3/_4$″ long × 0.12″ dia. (for $^{25}/_{32}$″ thick sheathing) galvanized roofing nails	3″ edges 6″ field
	GB Gypsum board	$^1/_2$″		Nails or screws per Table R602.3(1) for exterior locations	For all braced wall panel locations: 7"edges (including top and bottom plates) 7″ field
				Nails or screws per Table R702.3.5 for interior locations	
	PBS Particleboard sheathing (See Section R605)	$^3/_8$″ or $^1/_2$″ for maximum 16"stud spacing		For $^3/_8$″, 6d common (2″ long × 0.113″ dia.) nails; For $^1/_2$″, 8d common ($2^1/_2$″ long × 0.131″ dia.) nails	3″ edges 6″ field
	PCP Portland cement plaster	See Section R703.6 for maximum 16″ stud spacing		$1^1/_2$″ long, 11 gage, 0.120" dia., $^7/_{16}$″ dia. head nails or $^7/_8$″ long, 16 gage staples	6″ o.c. on all framing members
	HPS Hardboard panel siding	$^7/_{16}$″ for maximum 16″ stud spacing		0.092″ dia., 0.225″ dia. head nails with length to accommodate $1^1/_2$″ penetration into studs	4″ edges 8″ field
	ABW Alternate braced wall	$^3/_8$″		See Section R602.10.6.1	See Section R602.10.6.1

TABLE R602.10.4—(continued)
BRACING METHODS

TABLE R602.10.4—continued
BRACING METHODS

	METHODS, MATERIAL	MINIMUM THICKNESS	FIGURE	CONNECTION CRITERIA[a]	
				Fasteners	Spacing
Intermittent Bracing Methods	**PFH** Portal frame with hold-downs	3/8″		See Section R602.10.6.2	See Section R602.10.6.2
	PFG Portal frame at garage	7/16″		See Section R602.10.6.3	See Section R602.10.6.3
Continuous Sheathing Methods	**CS-WSP** Continuously sheathed wood structural panel	3/8″		8d common (2 1/2"x0.131) nails 3/8" edge distance to panel edge	6″ edges 12″ field
				8d common (2 1/2"x0.131) nails 3/8" edge distance to panel edge	Varies by fasteners
	CS-G[b,c] Continuously sheathed wood structural panel adjacent to garage openings	3/8″		See Method CS-WSP	See Method CS-WSP
	CS-PF Continuously sheathed portal frame	7/16″		See Section R602.10.6.4	See Section R602.10.6.4
	CS-SFB[d] Continuously sheathed structural fiberboard	1/2″ or 25/32″ for maximum 16″ stud spacing		1 1/2″ long × 0.12″ dia. (for 1/2″ thick sheathing) 1 3/4″ long × 0.12″ dia. (for 25/32″ thick sheathing) galvanized roofing nails	3″ edges 6″ field

For SI: 1 inch = 25.4 mm, 1 foot = 304.8 mm, 1 degree = 0.0175 rad, 1 pound per square foot = 47.8 N/m^2, 1 mile per hour = 0.447 m/s.

a. Adhesive attachment of wall sheathing, including Method GB, shall not be permitted in Seismic Design Categories C, D_0, D_1 and D_2.
b. Applies to panels next to garage door opening where supporting gable end wall or roof load only. Shall only be used on one wall of the garage. In Seismic Design Categories D_0, D_1 and D_2, roof covering dead load shall not exceed 3 psf.
c. Garage openings adjacent to a Method CS-G panel shall be provided with a header in accordance with Table R602.7(1). A full-height clear opening shall not be permitted adjacent to a Method CS-G panel.
d. Method CS-SFB does not apply in Seismic Design Categories D_0, D_1 and D_2.
e. Method applies to detached one- and two- family dwellings in Seismic Design Categories D_0 through D_2 only.
f. Methods GB and PCP braced wall panel h/w ratio shall not exceed 1:1 in SDC D_0, D_1 and D_2. Methods LIB, DWB, SFB, PBS, HPS, and PFG are not permitted in SDC D_0, D_1 and D_2.
g. Use of staples in braced wall panels shall be prohibited in SDC D_0, D_1 and D_2.

(ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.200 Amend CRC Table R602.10.5—Minimum length of braced wall panels.

Table R602.10.5 of the California Residential Code is amended to read as follows:

TABLE R602.10.5
MINIMUM LENGTH OF BRACED WALL PANELS

METHOD (See Table R602.10.4)		MINIMUM LENGTH[a] (inches) Wall Height					CONTRIBUTING LENGTH (inches)
		8 feet	9 feet	10 feet	11 feet	12 feet	
DWB, WSP, SFB, PBS, PCP, HPS, BV-WSP		48	48	48	53	58	Actual[b]
GB		48	48	48	53	58	Double sided = Actual Single sided = 0.5 x Actual
LIB		55	62	69	NP	NP	Actual[b]
ABW	SDC A, B and C, ultimate design wind speed < 140 mph	28	32	34	38	42	48
	SDC D_0, D_1 and D_2, ultimate design wind speed < 140 mph	32	32	34	NP	NP	
CS-G		24	27	30	33	36	Actual[b]
CS-WSP, CS-SFB	Adjacent clear opening height (inches)						
	≤ 64	24	27	30	33	36	Actual[b]
	68	26	27	30	33	36	
	72	27	27	30	33	36	
	76	30	29	30	33	36	
	80	32	30	30	33	36	
	84	35	32	32	33	36	
	88	38	35	33	33	36	
	92	43	37	35	35	36	
	96	48	41	38	36	36	
	100	—	44	40	38	38	
	104	—	49	43	40	39	
	108	—	54	46	43	41	
	112	—	—	50	45	43	
	116	—	—	55	48	45	
	120	—	—	60	52	48	
	124	—	—	—	56	51	
	128	—	—	—	61	54	
	132	—	—	—	66	58	
	136	—	—	—	—	62	
	140	—	—	—	—	66	
	144	—	—	—	—	72	
METHOD (See Table R602.10.4)		Portal header height					
		8 feet	9 feet	10 feet	11 feet	12 feet	
PFH	Supporting roof only	24	24	24	Note c	Note c	48
	Supporting one story and roof	24	24	24	Note c	Note c	
PFG		24	27	30	Note d	Note d	1.5 x Actual[b]
CS-PF	SDC A, B and C	16	18	20	Note e	Note e	1.5 x Actual[b]
	SDC D_0, D_1 and D_2	24	24	24	Note e	Note e	Actual[b]

For SI: 1 inch = 25.4 mm, 1 foot = 304.8 mm, 1 mile per hour = 0.447 m/s.

NP = Not Permitted.

a. Linear interpolation shall be permitted.

b. Use the actual length where it is greater than or equal to the minimum length.

c. Maximum header height for PFH is 10 feet in accordance with Figure R602.10.6.2, but wall height shall be permitted to be increased to 12 feet with pony wall.

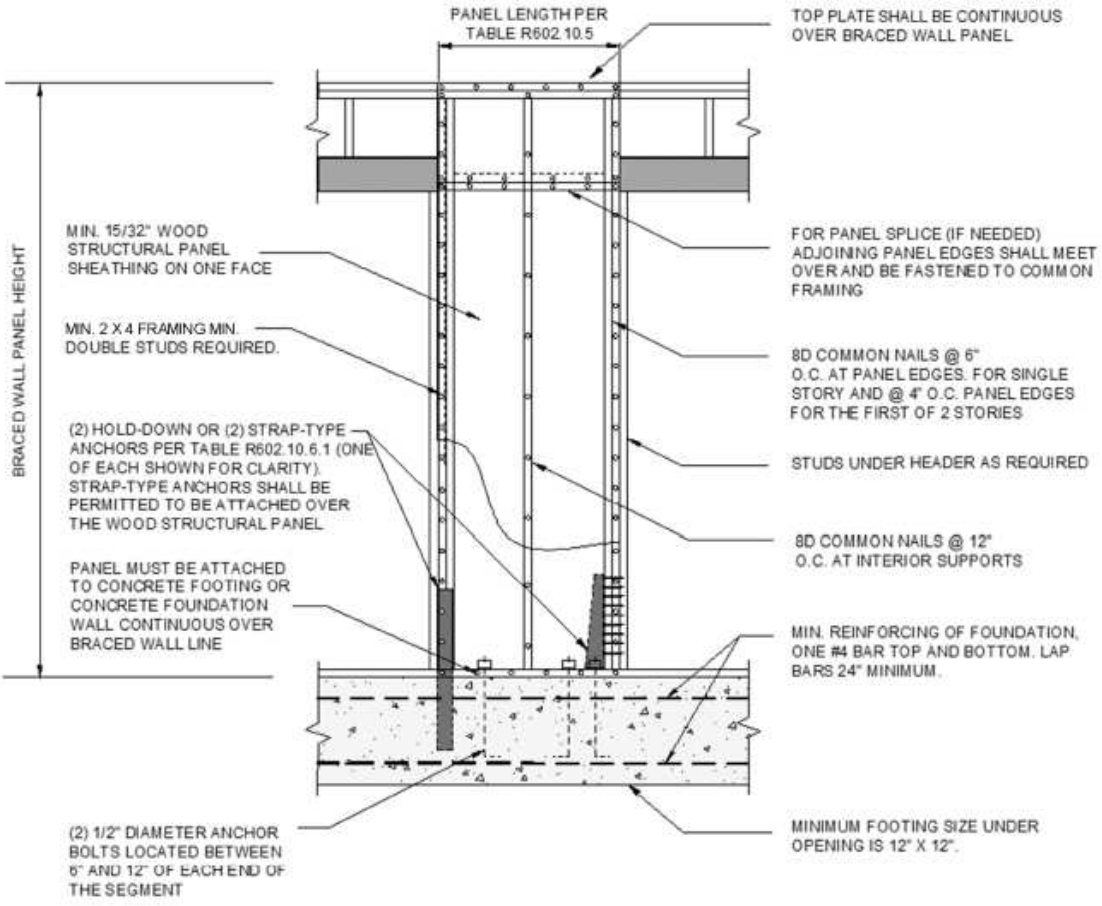
d. Maximum header height for PFG is 10 feet in accordance with Figure R602.10.6.3, but wall height shall be permitted to be increased to 12 feet with pony wall.

e. Maximum header height for CS-PF is 10 feet in accordance with Figure R602.10.6.4, but wall height shall be permitted to be increased to 12 feet with pony wall.

(ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.210 Amend CRC Figure R602.10.6.1—Method ABW: Alternate braced wall panel.

Figure R602.10.6.1 of the California Residential Code is amended to read as follows:



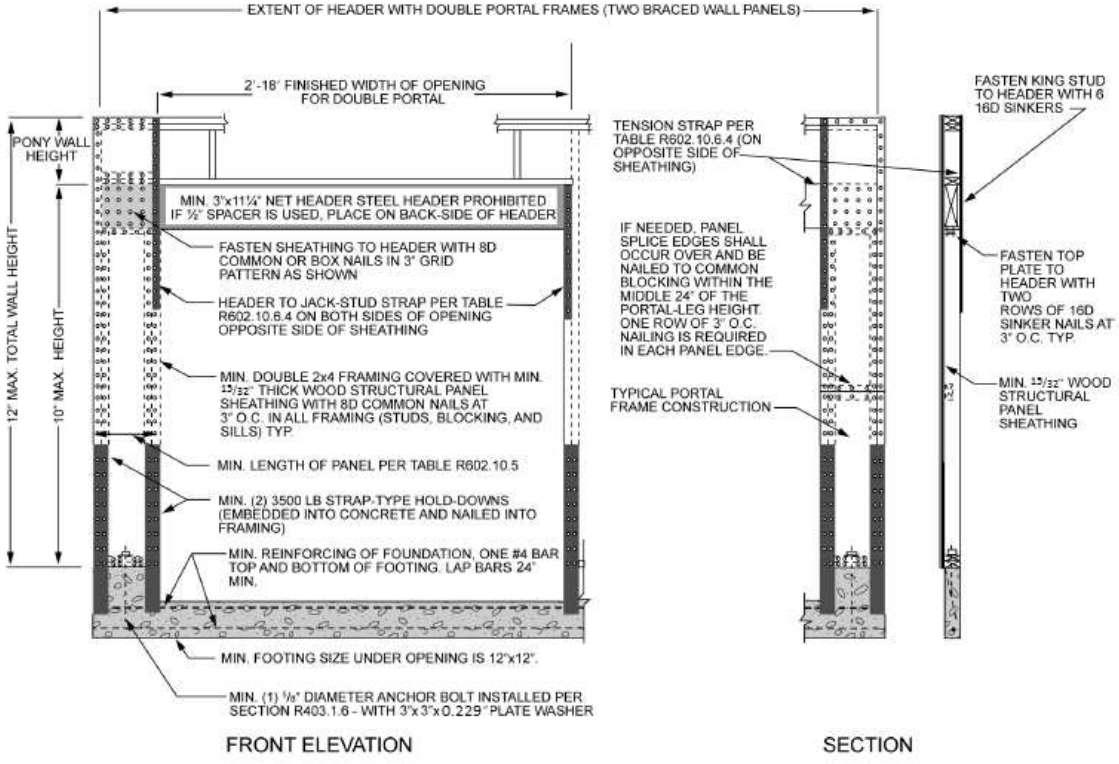
For SI: 1 inch = 25.4 mm.

FIGURE R602.10.6.1
METHOD ABW—ALTERNATE BRACED WALL PANEL

(ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.220 Amend CRC Figure R602.10.6.2—Method PFH: Portal frame with hold-downs at detached garage door openings.

Figure R602.10.6.2 of the California Residential Code is amended to read as follows:



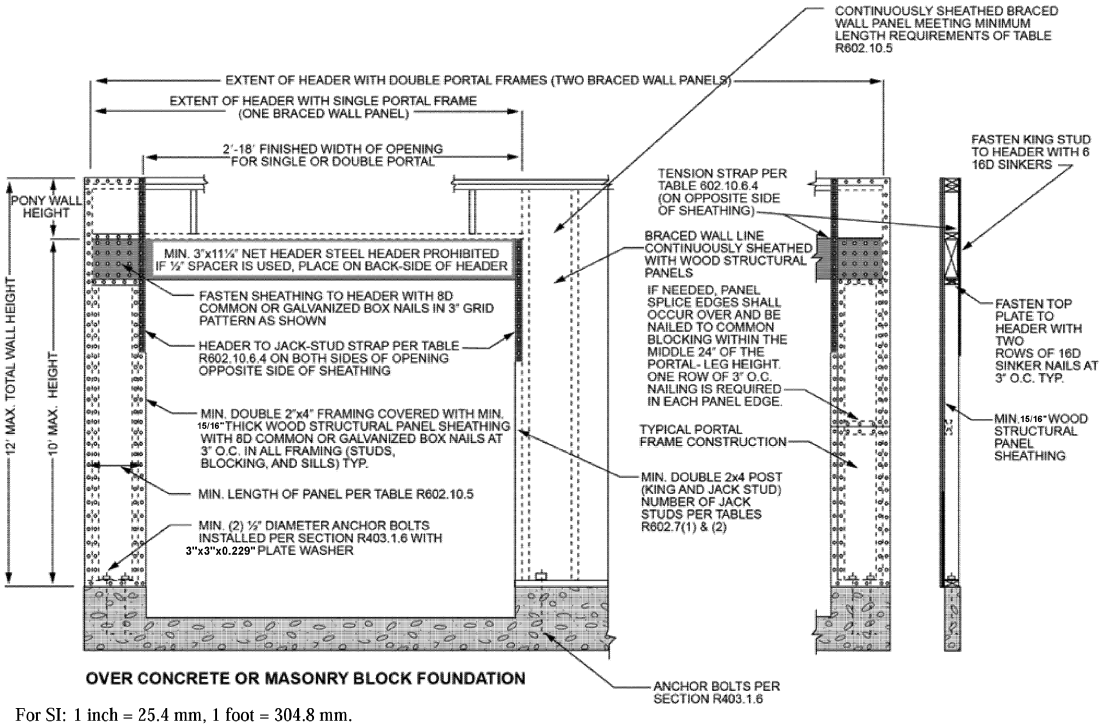
For SI: 1 inch = 25.4 mm, 1 foot = 304.8 mm.

FIGURE R602.10.6.2
METHOD PFH—PORTAL FRAME WITH HOLD-DOWNS AT DETACHED GARAGE OPENINGS

(ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.230 Amend CRC Figure R602.10.6.4—Method CS-PF: Continuously sheathed portal frame panel construction.

Figure R602.10.6.4 of the California Residential Code is amended to read as follows:



For SI: 1 inch = 25.4 mm, 1 foot = 304.8 mm.

FIGURE R602.10.6.4
METHOD CS-PF—CONTINUOUSLY SHEATHED PORTAL FRAME PANEL CONSTRUCTION

(ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.240 Amend CRC Section R606.4.4-Parapet walls.

Section R606.4.4 of the California Residential Code is amended to read as follows:

R606.4.4 Parapet walls. Unreinforced solid masonry parapet walls shall not be less than 8 inches (203 mm) thick and their height shall not exceed four times their thickness. Unreinforced hollow unit masonry parapet walls shall be not less than 8 inches (203 mm) thick, and their height shall not exceed three times their thickness. Masonry parapet walls in areas subject to wind loads of 30 pounds per square foot (1.44 kPa) or located in Seismic Design Category D_0, D_1 or D_2, or on townhouses in Seismic Design Category C shall be reinforced in accordance with Section R606.12. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.250 Amend CRC Section R606.12.2.2.3—Reinforcement requirements for masonry elements.

Section R606.12.2.2.3 of the California Residential Code is amended to read as follows:

R606.12.2.2.3 Reinforcement requirements for masonry elements. Masonry elements listed in Section R606.12.2.2.2 shall be reinforced in either the horizontal or vertical direction as shown in Figure R606.11(2) and in accordance with the following:

1. Horizontal reinforcement. Horizontal joint reinforcement shall consist of not less than one No. 4 bar spaced not more than 48 inches (1,219 mm). Horizontal reinforcement shall be provided within 16 inches (406 mm) of the top and bottom of these masonry elements.

2. Vertical reinforcement. Vertical reinforcement shall consist of not less than one No. 4 bar spaced not more than 48 inches (1,219 mm). Vertical reinforcement shall be within 8 inches (203 mm) of the ends of masonry walls. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.260 Add CRC Section R803.2.4—Openings in horizontal diaphragms.

Section R803.2.4 is added to Chapter 8 of the California Residential Code to read as follows:

R803.2.4 Openings in horizontal diaphragms. Openings in horizontal diaphragms shall conform with Section R503.2.4. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.270 Amend CRC Section R1001.3.1—Vertical reinforcing.

Section R1001.3.1 of the California Residential Code is amended to read as follows:

R1001.3.1 Vertical reinforcing. For chimneys up to 40 inches (1,016 mm) wide, four No. 4 continuous vertical bars adequately anchored into the concrete foundation shall be placed between wythes of solid masonry or within the cells of hollow unit masonry and grouted in accordance with Section R606. Grout shall be prevented from bonding with the flue liner so that the flue liner is free to move with thermal expansion. For chimneys more than 40 inches (1,016 mm) wide, two additional No. 4 vertical bars adequately anchored into the concrete foundation shall be provided for each additional flue incorporated into the chimney or for each additional 40 inches (1,016 mm) in width or fraction thereof. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.41.280 Amend CRC Section R306.1.1—Alternative provisions.

Section R306.1.1 of the California Residential Code is amended to read as follows:

R306.1.1 Alternative provisions. As an alternative to the requirements in Section R306, ASCE 24 is permitted subject to the limitations of this code and the limitations therein.

Where ASCE 24 is used as an alternative, the design flood elevation (DFE) shall be the greater of the DFE as defined in ASCE 24 and the base flood elevation (BFE) plus twelve (12) inches of flood freeboard and six (6) inches of freeboard to account for future sea-level rise. (ORD-25-0019 § 1(Exh. A), 2025)

Editor's note—ORD-25-0019, amended § 18.41.280 in its entirety to read as herein set out. Former § 18.41.280 was entitled "Amend CRC Section R322.1.1," and derived from ORD-25-0014 § 2, 2025.

18.41.290 Amend CRC Section R306.1.4—Establishing the design flood elevation.

Section R306.1.4 of the California Residential Code is amended to read as follows:

R306.1.4 Establishing the design flood elevation. The design flood elevation shall be used to define flood hazard areas. At a minimum, the design flood elevation shall be the higher of the following:

1. The base flood elevation at the depth of peak elevation of flooding, including wave height, that has a 1-percent (1,000-year flood) or greater chance of being equaled or exceeded in any given year.

2. The elevation of the design flood associated with the area designated on a flood hazard map adopted by the City, or otherwise legally designated.

3. The elevation of the base flood associated with the area designated on a flood hazard map adopted by the City, or otherwise legally designated, plus eighteen (18) inches to account for future sea-level rise. (ORD-25-0019 § 1(Exh. A), 2025)

Editor's note—ORD-25-0019, amended § 18.41.290 in its entirety to read as herein set out. Former § 18.41.290 was entitled "Amend CRC Section R322.1.4," and derived from ORD-25-0014 § 3, 2025.

18.41.300 Add CRC Section CI100.1—Required enclosure.

Section CI100.1 is added to Appendix CI of the California Residential Code to read as follows:

CI100.1 Required enclosure. A permanent enclosure preventing direct access to a swimming pool and/or spa shall be provided as one of the two drowning safety features required by the Swimming Pool Safety Act Section 115922(a) of the California Health and Safety Code.

Where the permanent enclosure includes an exterior wall of the residence and/or accessory structures including but not limited to garages, sheds, pool houses, and accessory dwellings units, any doors opening directly into the enclosed area shall be provided with a self-closing, self-latching device with a release mechanism placed not lower than 54 inches above the interior finished floor or a permanent exit alarm. (ORD-25-0019 § 1(Exh. A), 2025)

Editor's note—ORD-25-0019, amended § 18.41.300 in its entirety to read as herein set out. Former § 18.41.300 was entitled "Add CRC Section AX100.1 Required enclosure," and derived from ORD-25-0013 § 3, 2025.

18.41.310 Add CRC Section CI100.2—Access gates.

Section CI100.2 is added to Appendix CI of the California Residential Code to read as follows:

CI100.2 Access gates. Access gates shall comply with the requirements of the Swimming Pool Safety Act Section 115923(a) of the California Health and Safety Code. The access gate shall not exceed 48 inches in width. (ORD-25-0019 § 1(Exh. A), 2025)

Editor's note—ORD-25-0019, amended § 18.41.310 in its entirety to read as herein set out. Former § 18.41.310 was entitled "Add CRC Section AX100.2—Access gate," and derived from ORD-25-0013 § 4, 2025.

CHAPTER 18.42 ELECTRICAL CODE*

18.42.010 Adoption of California Electrical Code.

The City Council adopts and incorporates by reference as though set forth in full in this chapter the 2025 Edition of the California Electrical Code (herein referred to as the "California Electrical Code"). The California Electrical Code is Part 3 of the California Code of Regulations, Title 24, also referred to as the California Building Standards Code. This part is based on the provisions of the 2023 Edition of the National Electrical Code (herein referred to as the "National Electrical Code") as developed by the National Fire Protection Association with necessary California amendments. The following annexes of the California Electrical Code are included: Annexes A, B, C, and I. The following articles, chapters or annexes of the California Electrical Code are deleted: Annexes D, E, F, G, H, J, and K.

The adoption of the California Electrical Code is subject to the changes, amendments and modifications to said code as provided in this chapter, and certain provisions of the Long Beach Municipal Code, which shall remain in full force and effect as provided in this title. Such codes and code provisions shall constitute and be known as the Long Beach Electrical Code. A copy of the California Electrical Code, printed as code in book form, shall be on file in the Office of the City Clerk. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

***Editor's note**—ORD-19-0031 § 1(Exh. A), adopted Nov. 19, 2019, amended Ch. 18.42 in its entirety to read as herein set out. Former Ch. 18.42, §§ 18.42.010 and 18.42.020, pertained to similar subject matter, and derived from ORD-16-0026 § 1(Exh. A), 2016.

CHAPTER 18.43 PLUMBING CODE*

18.43.010 Adoption of California Plumbing Code.

The City Council adopts and incorporates by reference as though set forth in full in this chapter the 2025 Edition of the California Plumbing Code (herein referred to as "California Plumbing Code"). The California Plumbing Code is Part 5 of the California Code of Regulations, Title 24, also referred to as the California Building Standards Code. This part is based on the provisions of the 2024 Edition of the Uniform Plumbing Code as developed by the International Association of Plumbing and Mechanical Officials with necessary California amendments. The following appendices of the California Plumbing Code are included: Appendices A, B, D, G, H, I, and R. The following sections, chapters, or appendices of the California Plumbing Code are deleted: Sections 101.0 through 107.2 and Table 104.5 of Chapter 1, Division II; Chapters 13, 15 and 16; and Appendices C, E, F, J, K, L, M, N, O, P, Q, and S.

The adoption of the California Plumbing Code is subject to the changes, amendments and modifications to said code as provided in this chapter, and certain provisions of the Long Beach Municipal Code, which shall remain in full force and effect as provided in this title. Such codes and code provisions shall constitute and be known as the Long Beach Plumbing Code. A copy of the California Plumbing Code, printed as code in book form, shall be on file in the Office of the City Clerk. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

*__Editor's note__—ORD-19-0031 § 1(Exh. A), adopted Nov. 19, 2019, amended Ch. 18.43 in its entirety to read as herein set out. Former Ch. 18.43, §§ 18.43.010 and 18.43.020, pertained to similar subject matter, and derived from ORD-16-0026 § 1(Exh. A), 2016.

CHAPTER 18.44 MECHANICAL CODE†

18.44.010 Adoption of California Mechanical Code.

The City Council adopts and incorporates by reference as though set forth in full in this chapter the 2025 Edition of the California Mechanical Code (herein referred to as the "California Mechanical Code"). The California Mechanical Code is Part 4 of the California Code of Regulations, Title 24, also referred to as the California Building Standards Code. This part is based on the provisions of the 2024 Edition of the Uniform Mechanical Code as developed by the International Association of Plumbing and Mechanical Officials with necessary California amendments. The following appendices of the California Mechanical Code are included: Appendices A, B, and C. The following sections, chapters or appendices of the California Mechanical Code are deleted: Sections 101.0 through 107.2 and Table 104.5 of Chapter 1, Division II; and Appendices D, E, F, G, H, I, and J.

The adoption of the California Mechanical Code is subject to the changes, amendments and modifications to said code as provided in this chapter, and certain provisions of the Long Beach Municipal Code, which shall remain in full force and effect as provided in this title. Such codes and code provisions shall constitute and be known as the Long Beach Mechanical Code. A copy of the California Mechanical Code, printed as code in book form, shall be on file in the Office of the City Clerk. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

CHAPTER 18.45 HOUSING CODE

18.45.010 Adoption of Uniform Housing Code.

The City Council adopts and incorporates by reference as though set forth in full in this chapter

†__Editor's note__—ORD-19-0031 § 1(Exh. A), adopted Nov. 19, 2019, amended Ch. 18.44 in its entirety to read as herein set out. Former Ch. 18.44, §§ 18.44.010 and 18.44.020, pertained to similar subject matter, and derived from ORD-16-0026 § 1(Exh. A), 2016.

the 1997 Edition of the Uniform Housing Code (herein referred to as the "Uniform Housing Code"). Adoption and enforcement of the Uniform Housing Code is mandated through the State Housing Law pursuant to Section 17960, Part 1.5, Division 13, of the California Health and Safety Code. Section 17922 of the California Health and Safety Code requires the adoption of the latest edition of the Uniform Housing Code. The Uniform Housing Code was adopted by the California Department of Housing and Community Development as provided for in Section 32, Article 5, Subchapter 1, Division 1, of Title 25 of the California Code of Regulations. The provisions of the Uniform Housing Code were developed by the International Conference of Building Official. The following chapters of the Uniform Housing Code are deleted: Chapters 1, 2, 3, 4, 10, 11, 12, 13, 14, 15 and 16.

The adoption of the Uniform Housing Code is subject to the changes, amendments and modifications to said code as provided in this chapter, and certain provisions of the Long Beach Municipal Code, which shall remain in full force and effect as provided in this title. Such codes and code provisions shall constitute and be known as the Long Beach Housing Code. A copy of the Uniform Housing Code, printed as code in book form, shall be on file in the Office of the City Clerk. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.45.020 Application.

The provisions of the Uniform Housing Code are applicable to all occupancy groups and uses intended for human habitation. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.45.030 Add UHC Chapter 17—Prohibited uses and maintenance.

Chapter 17 is added to the 1997 Edition of the Uniform Housing Code to read as follows:

Chapter 17

PROHIBITED USES AND MAINTENANCE

SECTION 1701—PROHIBITED USES

A. Cooking. It shall be unlawful for any person to cook or prepare food or to permit another person to cook or prepare food in any bath, shower, slop sink, toilet room, water closet compartment, any room not designed and intended to be used as a kitchen, or in any other portion of a building in which the cooking or preparation of food is detrimental to the health of the occupants or the proper sanitation of the building.

B. Sleeping. It shall be unlawful for any person to use or to permit another person to use any of the following portions of a building for sleeping purposes:

1. Kitchen, hallway, water closet, bath, cellar, shower compartment or slop sink room.

2. Any other room or place which does not comply with the provisions of this code as a sleeping room or in which sleeping is dangerous to life or health.

SECTION 1702—MAINTENANCE AND REPAIR

A. Maintenance. Every building shall be maintained in good repair.

B. Roof. The roof of every building shall be kept watertight and all storm or casual water shall be properly drained and conveyed from the roof to a storm drain or street gutter in accordance with other applicable provisions of this chapter.

C. Drainage. All portions of a lot about a building, including the yards, areaways, vent shafts, court and passageways, shall be graded and drained to efficiently carry the water away from the building.

D. Surfacing. If the Building Official finds it necessary for the protection of the health and safety of the occupants, or for the proper sanitation of a dwelling, apartment house or hotel, it may require that the yards, areaways, vent shafts, court, passageways, or other parts of the lot surrounding the building be graveled, or properly paved and surfaced with concrete, asphalt or similar materials.

E. Painting of room walls and ceilings. The walls and ceilings of every room in a dwelling, apartment house or hotel shall be finished, sealed, coated or covered in an approved manner. Approved materials shall be applied as often as may be necessary to maintain the walls and ceilings in a clean and sanitary condition.

F. Painting of court and shaft walls. Unless built of light-colored materials, the walls of courts and shafts shall be painted in a light color, or shall be whitewashed. The paint or whitewash shall be applied as often as may be necessary to maintain the walls in a light color.

G. Wallpaper. Not more than two (2) thicknesses of wallpaper shall be placed upon any wall, partition, or ceiling of any room in any dwelling, apartment house or hotel. If any wall, partition, or ceiling with two (2) thicknesses of wallpaper in any such room is to be repapered, the old wallpaper shall first be removed. Any wallpaper which has become loose or dilapidated shall be removed and the surface repapered, calcimined or painted.

H. Painting of wallpaper. Paint or calcimine over wallpaper is permissible if the plaster under the wallpaper is in good condition.

I. Screening. Whenever necessary for the health of the occupants, or for the proper sanitation or cleanliness of any building, acceptable mosquito screening shall be provided for each exterior door, window, or other opening in the exterior walls of the buildings.

J. Garbage receptacle compartment. Every residential building shall be provided with facilities adequate for the storing of all garbage and waste, either within an approved compartment or receptacles. These facilities shall be maintained in a clean and sanitary condition.

K. Fences. All fences shall be maintained in good repair and shall be kept straight, uniform and structurally sound. Wooden fences shall be either painted or stained or otherwise treated or sealed in an approved manner to prevent their becoming a nuisance from weathering or deterioration.

L. Sanitation. Each room, hallway, passageway, stairway, wall, partition, ceiling, floor, skylight, glass window, door carpet, rug, matting, window curtain, water closet, compartment, or room, toilet room, bathroom, slop sink room, washroom, plumbing fixtures, drain, roof, closet, cellar, basement, yard, court, lot and the premises of every building shall be kept in every part clean, sanitary, and free from all accumulation of debris, abandoned or inoperable motor vehicles and vehicle parts, filth, rubbish, garbage, rodents, insects and other vermin, excessive vegetation and other offensive matter.

M. Dangerous articles. No article that is dangerous or detrimental to life or to the health of the occupants, including any feed, hay, straw, excelsior, cotton, paper stock, rags, junk, or any other material that may create a fire hazard, shall be kept, stored or handled in any part of a dwelling, apartment house or hotel, or on the lot on which such building is located.

N. Caretaker. A janitor, housekeeper, or other responsible person shall reside upon the premises and shall have charge of every apartment house in which there are sixteen (16) or more apartments, of every hotel in which there are twelve (12) or more guest rooms, unless the owner of any such apartment house or hotel resides upon said premises. If the owner does not reside upon the premises of any apartment house in which there are more than four (4) but less than sixteen (16) apartments, a notice stating the owner's name and address or the name and address of his or her agent in charge of the apartment house shall be posted in a conspicuous place on the premises.

O. Bedding. In every apartment house or hotel, every part of every bed, including mattress, sheets, blankets, and bedding, shall be kept in a clean, dry and sanitary condition, free from filth, urine or other foul matters, and from the infection of lice, bedbugs or other insects. The bed linen of a bed in a hotel shall be changed at least as often as a new guest occupies the bed. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.46 ENERGY CODE*

18.46.010 Adoption of California Energy Code.

The City Council adopts and incorporates by reference as though set forth in full in this chapter the 2025 Edition of the California Energy Code (herein referred to as the "California Energy Code"). The California Energy Code is Part 6 of the California Code of Regulations, Title 24, also referred to as the California Building Standards Code. This part is developed by the California Energy Commission.

The adoption of the California Energy Code and certain provisions of the Long Beach Municipal Code shall remain in full force and effect as provided in this title. Such codes and code provisions shall constitute and be known as the Long Beach Energy Code. A copy of the California Energy Code, printed as code in book form, shall be on file in the office of the City Clerk. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

CHAPTER 18.47 GREEN BUILDING STANDARDS CODE†

18.47.010 Adoption.

The City Council adopts and incorporates by reference as though set forth in full in this chapter the 2025 Edition of the California Green Building Standards Code (herein referred to as "California Green Building Standards Code"). The California Green Building Standards Code is Part 11 of the California Code of Regulations, Title 24, also referred to as the California Building Standards Code. The following appendices of the California Green Building Code are deleted: Appendices A4, A5, and A6.

The adoption of the California Green Building Standards Code is subject to the changes, amendments and modifications to said code as provided in this chapter, and certain provisions of the Long Beach Municipal Code, which shall remain in full force and effect as provided in this title. Such codes and code provisions shall constitute and be known as the Long Beach Green Building Standards Code. A copy of the California Green Building Standards Code, printed as code in book form, shall be on file in the Office of the City Clerk. (ORD-25-0019 § 1(Exh. A), 2025)

18.47.020 Amend CALGreen Sections 4.408.1 through 4.408.5—Construction waste reduction, disposal and recycling.

Sections 4.408.1 through 4.408.5 of the California Green Building Standards Code are deleted in their entirety and replaced to read as follows:

4.408.1 General. Covered projects meeting the threshold of Section 18.67.020 of Title 18 of the Long Beach Municipal Code shall comply with Chapter 18.67 Construction Waste Reduction, Disposal and Recycling of Title 18 of the Long Beach Municipal Code. (ORD-25-0019 § 1(Exh. A), 2025)

18.47.030 Amend CALGreen Section 5.303.1—Meters.

Section 5.303.1 of the California Green Building Standards Code is amended to read as follows:

5.303.1 Meters. Separate submeters or metering devices shall be installed for the uses described in Sections 5.303.1.1 through 5.303.1.3. (ORD-25-0019 § 1(Exh. A), 2025)

18.47.040 Add CALGreen Section 5.303.1.3—Mixed-use occupancy.

Section 5.303.1.3 is added to Chapter 5 of the California Green Building Standards Code to read as follows:

5.303.1.3 Mixed-use occupancy. In new buildings with mixed-use occupancies, separate metering devices shall be dedicated solely to each residential and nonresidential uses. The plumbing system downstream of the meters for the residen-

---

***Editor's note**—ORD-19-0031 § 1(Exh. A), adopted Nov. 19, 2019, amended Ch. 18.46 in its entirety to read as herein set out. Former Ch. 18.46, §§ 18.46.010 and 18.46.020, pertained to similar subject matter, and derived from ORD-16-0026 § 1(Exh. A), 2016.

†**Editor's note**—ORD-25-0019 § 1(Exh. A), adopted Nov. 11, 2025, amended Ch. 18.47 in its entirety to read as herein set out. Former Ch. 18.47, §§ 18.47.010—18.47.080, pertained to similar subject matter, and derived from ORD-22-0033 § 1(Exh. A), adopted Nov. 15, 2022.

tial and nonresidential uses shall be independent of the other and not cross-connected. (ORD-25-0019 § 1(Exh. A), 2025)

18.47.050 Amend CALGreen Sections 5.408.1 through 5.408.1.4—Construction waste reduction, disposal and recycling.

Sections 5.408.1 through 5.408.1.4 of the California Green Building Standards Code are deleted in their entirety and replaced to read as follows:

5.408.1 General. Covered projects meeting the threshold of Section 18.67.020 of Title 18 of the Long Beach Municipal Code shall comply with Chapter 18.67 Construction and Demolition Recycling Program of Title 18 of the Long Beach Municipal Code. (ORD-25-0019 § 1(Exh. A), 2025)

CHAPTER 18.48 FIRE CODE*

18.48.010 Adoption of the California Fire Code.

The City Council adopts and incorporates by reference as though set forth in full in this chapter the 2025 Edition of the California Fire Code (CFC). The following chapters or sections of the California Fire Code are also included; Chapter 1 Division II Parts 1 and 2, Sections 305, 307, 308, 309, 311.2.1, 311.3, and 503. The following chapters or sections of the California Fire Code are deleted; 105.5.34, 112, 903.4.1 exceptions 4 and 5, 907.3.1 exception 1 and 913.4 methods 3 and 4. The California Fire Code is Part 9 of the California Code of Regulations, Title 24, also referred to as the California Building Standards Code. This part is based on the provisions of the 2024 International Fire Code (model code) as developed by the International Code Council with necessary California amendments.

The adoption of the 2025 Edition of the California Fire Code (herein referred to as the "California Fire Code") is subject to the changes, amendments and modifications to said code as provided in this chapter, and certain provisions of the Long Beach Municipal Code, which shall remain in full force and effect as provided in this Title. Such codes and code provisions shall constitute and be known as the Long Beach Fire Code. A copy of the California Fire Code, printed as code in book form, shall be on file in the Office of the City Clerk. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.020 CFC Chapter 1, Section 101.1—Title.

Section 101.1 of Chapter 1 of the California Fire Code is amended to read as follows:

101.1 Title. These regulations shall be known as the Fire Code of the City of Long Beach, hereinafter referred to as "this code." (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.030 CFC Chapter 1, Section 101.2—Scope.

Section 101.2 of Chapter 1 of the California Fire Code is amended by the addition of Subsection 6 to read as follows:

6. The maintenance of fire protection and elimination of fire hazards on vessels moored, anchored, or berthed in waters under the jurisdiction of the City and/or within the boundaries of the Port of Long Beach. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.040 CFC Chapter 1, Section 101.2—Scope.

Section 101.2 of Chapter 1 of the California Fire Code is amended by the addition of Section 101.2.2 to read as follows:

101.2.2 Supplemental rules and regulations. The Fire Code Official is authorized to make and enforce such rules and regulations for the prevention and control of fires, fire hazards and hazardous materials incidents as may be necessary from time to time to carry out the intent of this code. Three certified copies of such rules and regulations shall be filed with the City Clerk and shall

*Editor's note—ORD-22-0033 § 1(Exh. A), adopted Nov. 15, 2022, amended Ch. 18.48 in its entirety to read as herein set out. Former Ch. 18.48, §§ 18.48.010—18.48.790, pertained to similar subject matter, and derived from ORD-19-0031 § 1(Exh. A), adopted Nov. 19, 2019.

take effect immediately thereafter. Additional copies shall be kept in the Fire Prevention Bureau Office. These rules and regulations shall be known as the Fire Prevention Requirements. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.045 CFC Chapter 1, Section 103.1—Fire Prevention Bureau.

Section 103.1 of Chapter 1 of the California Fire Code is amended to read as follows:

103.1 Fire Prevention Bureau. There is established in the City a Department known and designated as the Fire Department. In addition to the duties imposed upon said Department by the City Charter and other ordinances of the City, the function of the Fire Prevention Bureau of said Department shall be the implementation, administration and enforcement of the provisions of this code. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.050 CFC Chapter 1, Section 103.2—Appointment.

Section 103.2 of Chapter 1 of the California Fire Code is amended to read as follows:

103.2 Appointment. The Fire Code Official shall be appointed by the Fire Chief. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.060 CFC Chapter 1, Section 104.4—Right of entry.

Section 104.4 of Chapter 1 of the California Fire Code is amended by the addition of the following paragraph to read as follows:

The Fire Code Official shall have the authority to direct inspection and ensure compliance with the Long Beach Fire Code on all tankers and vessels at anchor or dockside in waters under the jurisdiction of the City and/or within the boundaries of the Port of Long Beach. All vessels shall comply with rules and regulations set forth in federal, State and local codes. Access to vessels shall be maintained at all times while the vessel is at anchor or dockside by use of proper brows or accommodation ladders. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.070 CFC Chapter 1, Section 104.7—Official records.

Section 104.7 of Chapter 1 of the California Fire Code is amended to read as follows:

104.7 Official records. The Fire Code Official shall keep official records as required by Sections 104.7.1 through 104.7.6. Such official records shall be retained for not less than three years or for as long as the activity to which such records relate remains in existence, unless otherwise provided by other regulations. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.080 CFC Chapter 1, Section 105.1.2—Types of permits.

Section 105.1.2 of Chapter 1 of the California Fire Code is amended by revising the first sentence to read as follows:

105.1.2 Types of permits. There shall be three types of permits as follows: (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.090 CFC Chapter 1, Section 105.1.2—Types of permits.

Section 105.1.2 of Chapter 1 of the California Fire Code is amended by the addition of Subsection 3 to read as follows:

3. Inspection permit. An inspection permit allows the applicant to construct, enlarge, alter, repair, move, demolish, or change the occupancy of a building or structure, fire access roadways, smoke control systems, high piled storage, hazardous materials when not in "H" occupancies, and special systems as indicated in Section 18.48.160. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.100 CFC Chapter 1, Section 105.2—Application.

Section 105.2 of Chapter 1 of the California Fire Code is amended by the addition of Sections 105.2.5, 105.2.5.1 and 105.2.5.2 to read as follows:

105.2.5 Declaration of intended use of occupancy. As required by the Fire Code Official, any

or all owners of any occupancy may be required to record with the County Recorder of the County of Los Angeles a legal instrument of intended use. This legal instrument shall be called a Declaration of Intended Use, which shall specifically state by occupancy classification designations all intended uses of all portions of the occupancy and may not be modified or withdrawn without the approval of the Fire Code Official. Unapproved changes of occupancy or use can be cause for an immediate hearing before the Building Official and the Fire Code Official or their designees. Such hearing shall be conducted to rule on the revocation of the Certificate of Occupancy and the revocation of all permits issued to all owners, tenants, operators and occupants of all portions of the occupancy. The Declaration of Intended Use shall be binding on all present and future owners, tenants, operators and occupants.

105.2.5.1 Existing occupancy modification. Any existing occupancy that is modified in any manner where the modifications exceed 1% of the total floor area of the smallest aggregate individual floor area or tier area in any twelve-month period, shall require the filing of a Declaration of Intended Use.

105.2.5.2 Filing. A certified copy of the recorded Declaration of Intended Use shall be filed with the Building Official and the Fire Code Official before any Certificate of Occupancy and/or any permits are issued to any or all owners, operators or occupants of the occupancy. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.110 CFC Chapter 1, Section 105.3.1—Expiration.

Section 105.3.1 of Chapter 1 of the California Fire Code is amended to read as follows:

105.3.1 Expiration. An operational permit shall remain in effect until reissued, renewed or revoked, or for such a period of time as specific in the permit. Construction and inspection permits issued shall be valid for a period of two (2) years from the date after its issuance; provided however that every permit issued shall expire on the ninetieth (90^{th}) day after its issuance if the work on the site authorized by such permit has not commenced or has not been inspected; or shall expire whenever the Fire Code Official determines the work authorized by such permit has been suspended, discontinued or abandoned or has not been inspected for a continuous period of ninety (90) days after the time the work has commenced. Permits are not transferrable and any change in occupancy, operation, tenancy or ownership shall require that a new permit be issued.

EXCEPTION: If the holder of any permit issued by the Fire Prevention Bureau presents satisfactory evidence that unusual construction difficulties has prevented work from being started or continued without being suspended, discontinued or abandoned or the work has not been inspected within the ninetieth (90th) day time period or completed within the two-year period of validity, the Fire Code Official may grant extensions of time reasonably necessary because of such difficulties. The extension shall be requested in writing for that purpose with justifiable cause demonstrated. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.120 CFC Chapter 1, Section 105.5—Required operational permits.

Section 105.5 of Chapter 1 of the California Fire Code is amended to read as follows:

105.5 Required operational permits. The Fire Code Official is authorized to issue operational permits for the operations set forth in Chapter 1, Sections 105.5.1 through 105.5.73. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.130 CFC Chapter 1, Section 105.5—Required operational permits.

Section 105.5 of Chapter 1 of the California Fire Code is amended by the addition of Sections 105.5.60 through 105.5.74 to read as follows:

105.5.60 Airport, heliport and helistop. An operational permit is required to operate an airport, heliport and helistop.

105.5.61 Bulk storage facility. Above ground bulk storage of flammable and combustible liquids for each 225,000 BBL or major fraction thereof.

105.5.62 Educational occupancy. An operational permit is required to operate any occupancy classified as a Group E occupancy or E-Daycare in all commercial properties and residential properties with seven (7) or more children.

105.5.63 Emergency responder communication enhancement system. An operational permit is required to operate an emergency responder communication enhancement system.

105.5.64 General use permit. An operational permit is required to maintain, store, use or handle materials, or to conduct processes which may produce conditions hazardous to life or property, or to install equipment used in connection with such processes, or to carry on any activity which in the opinion of the Fire Code Official may be hazardous to life and property and which is not specifically covered by Section 105.5

105.5.65 High-rise. An operational permit is required to operate any high-rise structure.

105.5.66 Hot air balloon. An operational permit is required to launch any hot air balloon which has its lifting power provided by an open flame device. A plan shall be submitted for approval showing distances from buildings and other possible hazards, as determined by the Fire Code Official, before the permit is issued.

105.5.67 Institutional occupancy. An operational permit is required to operate any occupancy classified as an I-2, I-3 or I-4 occupancy.

105.5.68 Marijuana facility. An operational permit is required to operate a dispensary, cultivation, manufacturing, distribution or similar facility.

105.5.69 Marine service station. An operational permit is required to operate a marine service station.

105.5.70 Public firework display. An operational permit is required to conduct a public firework display.

105.5.71 Radioactive material. An operational permit is required to store or handle radioactive materials.

105.5.72 Recreational fire. An operational permit is required for a recreational fire.

105.5.73 Residential occupancy. An operational permit is required to operate a residential occupancy with three or more units.

105.5.74 Rifle range. An operational permit is required to operate a rifle range. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.140 CFC Chapter 1, Section 105.5.18—Flammable and combustible liquids.

Section 105.5.18 of Chapter 1 of the California Fire Code is amended by the revision of Subsection (3) to read as follows:

3. To store, handle or use Class II or Class IIIA liquids in excess of 25 gallons (95 L) in a building or in excess of 60 gallons (227 L) outside a building. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.150 CFC Chapter 1, Section 105.6—Required construction and inspection permits.

Section 105.6 of Chapter 1 of the California Fire Code is amended to read as follows:

105.6 Required construction and inspection permits. The Fire Code Official is authorized to issue construction and inspection permits for work as set forth in Chapter 1, Sections 105.6.1 through 105.6.30. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.160 CFC Chapter 1, Section 105.6—Required construction and inspection permits.

Section 105.6 of Chapter 1 of the California Fire Code is amended by the addition of Sections 105.6.26 through 105.6.31 to read as follows:

105.6.26 Buildings and structures. A construction permit is required to construct, enlarge, alter, repair, move, demolish, or change the occupancy of a building or structure.

105.6.27 Automatic sprinkler systems. A construction permit is required for the installation or modification of an automatic sprinkler system, including all interior and exterior piping, valves, or appurtenances. Maintenance performed in accordance with this code is not considered a modification and does not require a permit.

105.6.28 Fire Department emergency access and building emergency egress. A construction permit is required for the construction or modification of a Fire Department emergency access and building emergency egress.

105.6.29 High piled storage. A construction permit is required for the construction or modification of a high piled storage area inside, or outside of any building or structure.

105.6.30 Hazardous materials, when not in "H" occupancies. A construction permit is required for the installation or modification of a hazardous material, when not in "H" occupancies.

105.6.31 Special systems. A construction permit is required for the construction or modification of vapor recovery systems, dust collection systems, compressed or liquefied gas manifolds, and other special systems requiring Fire Department approvals. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.170 CFC Chapter 1, Section 108—Fees.

Section 108 of Chapter 1 of the California Fire Code is amended by the addition of Sections 108.7, 108.8, and 108.9 to read as follows:

108.7 Operational permit fees. The fee set forth and established for the particular activity by a resolution of the City Council shall accompany all operational permits required pursuant to the provisions of this code.

108.8 Construction and inspection permit fees. Construction and inspection permit fees shall be paid at the time of the permit issuance. In addition to the permit fee, the applicant shall pay a plan check fee. The fee set forth and established for the particular activity by a resolution of the City Council shall accompany all construction and inspection permits required pursuant to the provisions of this code.

108.9 Reinspection fee. When the Fire Code Official or his representative arrives at an occupancy to inspect for compliance with a written order or notice and is prevented from making the inspection due to inaccessibility of the area, or finds that compliance with the written order has not been made or other circumstances, or when an inspection is scheduled for operational or construction permits and the permittee is not ready for inspection and does not inform the Fire Code Official or his representative two hours prior to the scheduled inspection, a reinspection fee may be assessed. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.180 CFC Chapter 1, Section 110.2—Testing and operation.

Section 110.2 of Chapter 1 of the California Fire Code is amended by the addition of Section 110.2.2 to read as follows:

110.2.2 Submission of records. Contractors, engineers, test companies and licensed and/or certified testers who perform inspection, testing and/or maintenance services on fire protection and life safety systems and equipment within the City of Long Beach are required to electronically submit all compliant and non-compliant reports to the Long Beach Fire Department via a method approved by the Fire Code Official. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.190 CFC Chapter 1, Section 110.6—Overcrowding.

Section 110.6 of Chapter 1 of the California Fire Code is amended by the addition of Section 110.6.1 to read as follows:

110.6.1 Occupant count. The supervisor of each place of assembly shall have an effective system to keep count of the number of occupants present in the assembly area. If at any time, the Fire Code Official determines that an accurate count of occupants is not being maintained, the occupancy shall be cleared until an accurate count can be made. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.200 CFC Chapter 1, Section 113.4—Violation penalties.

Section 113.4 of Chapter 1 of the California Fire Code is amended to read as follows:

113.4 Violation penalties. Persons who shall violate a provision of this code or shall fail to comply with any of the requirements thereof or who shall erect, install, alter, repair or do work in violation of the approved construction documents or directive of the Fire Code Official, or of a permit or certificate used under the provisions of this code, or who enters a building that has been declared "unsafe" and ordered "evacuated", shall be guilty of a misdemeanor.

A person is guilty of a separate offense each day during which he or she commits, continues, or permits a violation of any provision of, or any order, rule, or regulation made pursuant to, this chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.210 CFC Chapter 1, Section 114.4—Failure to comply.

Section 114.4 of Chapter 1 of the California Fire Code is amended to read as follows:

114.4 Failure to comply. Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be guilty of a misdemeanor.

A person is guilty of a separate offense each day during which he or she commits, continues, or permits a violation of any provision of, or any order, rule, or regulation made pursuant to, this chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.220 CFC Chapter 1—Administration.

Chapter 1 Division II of the California Fire Code is amended by the addition of Section 116 to read as follows:

SECTION 116 - RESPONSIBILITY

116.1 Responsibility for costs. Persons who personally or through another willfully, negligently, or in violation of law set a fire, allow a fire to be set, allow a fire kindled or attended by them to escape from their control, allow any hazardous materials to escape from their control, neglect to properly comply with any written notice of the Fire Code Official, or willfully or negligently allow the continuation of a violation of this code and amendments thereto are liable for the expenses of fighting the fire, for the expenses of any investigation, or for the expenses incurred during a hazardous materials incident. Such expenses shall be a charge against that person. Such charge shall constitute a debt of such person, and is collectible by the City in the same manner as in the case of an obligation under a contract, expressed or implied and a lien may be attached to the involved property.

116.2 Reporting injuries caused by fires. Any person, firm, corporation, or agency that maintains a hospital, pharmacy, or any other medical or first aid service shall immediately report to the Fire Code Official any person suffering from any fire-related injury. The report shall be made both by telephone and in writing, and shall include the name and address of the injured person, the person's whereabouts, and the character and extent of the person's injuries. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.230 CFC Chapter 2, Section 202—General definitions.

Section 202 of Chapter 2 of the California Fire Code is amended by adding or revising the following definitions to read as follows:

Boat Yard. A facility for construction, repair, storage, launching, berthing, and fueling of small craft.

Fire Chief. The chief officer of the Fire Department serving the jurisdiction.

Fire Code Official. The fire marshal or his or her designated representatives.

High-rise structure. Every building of any type of construction or occupancy having floors used for human occupancy located more than seventy-five (75) feet above the lowest floor level having building access (see California Building Code, Section 403) or the lowest level of Fire Department

vehicle access, whichever is more restrictive, except buildings used as hospitals as defined in Section 1250 of the California Health and Safety Code.

Small Craft. Vessels under sixty-five (65) feet in length. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.240 CFC Chapter 3, Section 307.1.1—Prohibited open burning.

Section 307.1.1 of Chapter 3 of the California Fire Code is amended to read as follows:

307.1.1 Prohibited open burning. Open burning shall be conducted in accordance with Section 307 and as required by other governing agencies regulating emissions. No person shall conduct open burning for any purposes except:

1. When such fire is set or permission for such fire is given in the performance of the official duty of any Public Safety Officer, and the fire in the opinion of such officer is necessary for the purpose of the prevention of a fire hazard which cannot be abated by any other means or for the purpose of the instruction of public employees in the methods of fighting fire.

2. When such fire is set on property used for industrial or institutional purposes to instruct employees in methods of fighting fire.

3. The Fire Code Official has issued an open burning permit allowing open burning for a specific purpose. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.250 CFC Chapter 3, Section 307.4.2—Recreational fires.

Section 307.4.2 of Chapter 3 of the California Fire Code is amended by the addition of Section 307.4.2.1 to read as follows:

307.4.2.1 Recreational fires. Recreational fires shall be in accordance with Section 307. Recreational fires shall not be conducted unless the Fire Code Official has issued a permit allowing such fires. For recreational fires, this permit shall be issued without cost. (ORD-25-0019 § 1(Exh. A), 2025)

Editor's note—ORD-25-0019, amended § 18.48.250 in its entirety to read as herein set out. Former § 18.48.250 was entitled "CFC Chapter 3, Section 307.4.2—General," and derived from ORD-22-0033 § 1(Exh. A), 2022.

18.48.260 CFC Chapter 3, Section 308.1.7—Sky lanterns.

Section 308.1.7 of Chapter 3 of the California Fire Code is amended to read as follows:

308.1.7 Sky lanterns. A person shall not release or cause to be released a sky lantern. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.270 CFC Chapter 3, Section 312.2—Posts.

Section 312.2 of Chapter 3 of the California Fire Code is amended by the revision of Subsection (4) and the addition of Subsections (6) and (7) to read as follows:

(4) Set the top of the posts not less than 4 feet above ground.

(6) Where heavy truck traffic is anticipated guard posts shall be a minimum of 6 inches in diameter, or as required by the Fire Code Official, concrete filled, located not less than 5 feet from the protected object, and have the tops of the posts not less than 4 feet above ground.

(7) Guard posts shall be painted safety yellow. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.280 CFC Chapter 4, Section 403.11—Special requirements for public safety.

Section 403.11 of Chapter 4 of the California Fire Code is amended by the addition of Section 403.11.4 to read as follows:

403.11.4 Fire safety officer. When in the opinion of the Fire Code Official, a place of assembly or any other place where people congregate, because of the number of persons, or nature of performance, exhibition, display, contest or activity or any other type of activity, and when the Fire Code Official determines it is essential for public safety, the owner, agent, lessee or responsible party shall pay for Long Beach Fire Department Fire Safety Officers to be present. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.290 CFC Chapter 5, Section 503.2.1—Dimensions.

Section 503.2.1 of Chapter 5 of the California Fire Code is amended to read as follows:

503.2.1 Dimensions. Fire apparatus access roads shall have an unobstructed width of not less than 26 feet, and an unobstructed vertical clearance of 15 feet, or as approved by the Fire Code Official. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.300 CFC Chapter 5, Section 503.2.3—Surface.

Section 503.2.3 of Chapter 5 of the California Fire Code is amended to read as follows:

503.2.3 Surface. Fire apparatus access roads shall be designed and maintained to support the imposed loads of fire apparatus and shall be surfaced so as to provide all-weather driving capabilities, as approved by the Fire Code Official. Permeable pavers or similar materials and methods shall not be acceptable. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.310 CFC Chapter 5, Section 503.2.4—Turning radius.

Section 503.2.4 of Chapter 5 of the California Fire Code is amended to read as follows:

503.2.4 Turning radius. Fire apparatus access roads shall have a minimum inside turning radius of 28 feet, or as approved by the Fire Code Official. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.320 CFC Chapter 5, Section 505.1—Address identification.

Section 505.1 of Chapter 5 of the California Fire Code is amended by the addition of the following sentence to read as follows:

When in the opinion of the Fire Code Official address numbers need to be larger due to building location, each character shall be 8 inches in height or larger as required by the Fire Code Official. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.330 CFC Chapter 5, Section 505.1—Address identification.

Section 505.1 of Chapter 5 of the California Fire Code is amended by the addition of Sections 505.1.1 and 505.1.2 to read as follows:

505.1.1 Rear address numbers. All buildings on the property of the Long Beach Airport, and all multi-tenant buildings within the City, shall be provided with address numbers and/or suite numbers on the rear doors to each tenant space.

505.1.2 Address illumination. Address numbers on the street or road frontage of the building, shall be internally or externally illuminated. In addition, buildings on the Long Beach Airport property shall have the rear address numbers internally or externally illuminated, in addition to the street or road frontage addresses. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.340 CFC Chapter 5, Section 506.1—Where required.

Section 506.1 of Chapter 5 of the California Fire Code is amended by the addition of Sections 506.1.3 and 506.1.4 to read as follows:

506.1.3 Identification. When required, keys shall be clearly tagged as to the area and/or location they serve and a minimum of three separate sets shall be located within the key box.

506.1.4 Gates. Vehicular or pedestrian gates obstructing required fire access shall be provided with locking devices and/or over-ride mechanisms, which have been approved by the Fire Code Official. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.350 CFC Chapter 5, Section 507.2.1—Private fire service mains.

Section 507.2.1 of Chapter 5 of the California Fire Code is amended by the addition of Section 507.2.1.1 to read as follows:

507.2.1.1 Tracer wire. Where nonmetallic pipe or fittings are used in the installation of private fire service mains, tracer wire shall be installed along the pipe and fittings. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.360 CFC Chapter 5, Section 507.5—Fire hydrant systems.

Section 507.5 of Chapter 5 of the California Fire Code is amended to read as follows:

507.5 Fire hydrant systems. Fire hydrants systems shall comply with Sections 507.5.1 through 507.5.8 and Appendix C or by an approved method. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.370 CFC Chapter 5, Section 507.5—Fire hydrant systems.

Section 507.5 of Chapter 5 of the California Fire Code is amended by the addition of Sections 507.5.7 and 507.5.8 to read as follows:

507.5.7 Hydrant markers. Fire hydrants shall be identified with blue reflective raised pavement markers within the fire access road, or other means as required by the Fire Code Official.

507.5.8 Painting. Private fire hydrant systems shall have the hydrants painted with two coats of fire hydrant red. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.380 CFC Chapter 5, Section 510.5.4—Acceptance test procedures.

Section 510.5.4 of Chapter 5 of the California Fire Code is amended by the addition of Section 510.5.4.1 to read as follows:

510.5.4.1 Acceptance testing. When required by the Fire Code Official, an approved independent test company shall be obtained by the installing contractor to witness and record all acceptance testing. All test results shall be sent to the Fire Code Official. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.390 CFC Chapter 5—Fire Service Features.

Chapter 5 of the California Fire Code is amended by the addition of Section 511 to read as follows:

SECTION 511 - EMERGENCY HELICOPTER LANDING FACILITY

511.1 General. Each high-rise building shall have an Emergency Helicopter Landing Facility (EHLF) located on the roof of the building in an area approved by the Fire Department. The landing facility shall be for emergency operations only and installed in accordance with Section 511.

511.2 Approaches. A landing glide slope angle determined by a ratio of eight feet horizontal distance for every one foot of vertical clearance is required. Two such approaches shall be available at least ninety degrees removed from each other.

511.3 Landing and takeoff area. A clear, unobstructed landing and takeoff area is required with a minimum dimension of one hundred feet by one hundred feet and a touchdown area having a minimum dimension of fifty feet by fifty feet.

511.4 Roof perimeter. If the roof has no parapet wall, a substantial fence or safety net shall be provided around the perimeter of the roof in such a manner that it will not restrict or reduce the required landing and takeoff area.

511.5 Wind device. An approved wind-indicating device shall be provided.

511.6 Standpipe. A Class II wet standpipe shall be provided and located in such a manner that it will not restrict or reduce the required landing and takeoff area.

511.7 Marking. The rooftop shall be marked by an emergency marker as required by the Fire Code Official.

511.8 Communication system. An extension of the building's emergency communication system shall extend to the roof and shall consist of a head set and microphone in a cabinet.

EXCEPTION: Where approved by the Fire Code Official, Fire Prevention Requirement 1.1016A Alternate to Emergency Helicopter Landing Facility, shall be used when submitting for a modification to eliminate the EHLF requirement. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.400 CFC Chapter 9, Section 901.4.2—Nonrequired fire protection and life safety systems.

Section 901.4.2 of Chapter 9 of the California Fire Code is amended to read as follows:

901.4.2 Nonrequired fire protection and life safety systems. Any fire protection and life safety

system not required by this code or the California Building Code shall be furnished for complete protection throughout the entire building and meet all requirements of this code and the California Building Code unless a fire wall, with no door or window opening, is constructed per the California Building Code Section 706 to separate the building or fire areas. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.410 CFC Chapter 9, Section 901.4—Fire protection and life safety systems.

Section 901.4 of Chapter 9 of the California Fire Code is amended by the addition of Section 901.4.8 to read as follows:

901.4.8 Protection of fire protection systems and equipment. Fire protection systems and equipment subject to possible vehicular damage shall be adequately protected with guard posts in accordance with Section 312 Vehicle Impact Protection, and modifications adopted under this code. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.420 CFC Chapter 9, Section 903.1—General.

Section 903.1 of Chapter 9 of the California Fire Code is amended by the addition of Sections 903.1.2 and 903.1.3 to read as follows:

903.1.2 Existing buildings. An automatic sprinkler system shall be installed in all existing occupancies as required by this section, if any of the following occurs:

1. There is a change in occupancy classification to one that would require an automatic sprinkler system per the Fire Code in the new occupancy.

2. The Fire Code Official determines that an automatic sprinkler system is required to provide a minimum level of public safety.

903.1.3 Partial automatic sprinkler systems. Partial automatic sprinkler systems are not allowed. Where automatic sprinkler systems are required to be installed by this section, or by any other sections in this code, or any nationally recognized standards, or are electively installed, the automatic sprinkler system shall be installed throughout the entire building, unless a fire wall, with no door or window openings, is constructed per the California Building Code Section 706 to separate the building or fire areas. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.430 CFC Chapter 9, Section 903.2—Where required.

Section 903.2 of Chapter 9 of the California Fire Code is amended by the addition of the following paragraph to read as follows:

All new commercial, industrial and non-residential buildings that require two or more exits or that are greater than 3,000 sq. ft. shall be protected by an automatic sprinkler system. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.440 CFC Chapter 9, Section 903.2.8—Group R.

Section 903.2.8 of Chapter 9 of the California Fire Code is amended by the addition of the following paragraphs to read as follows:

All new multi-family (3 or more units) residential, hotels, motels and similar buildings shall be protected by an automatic sprinkler system.

All new single-family dwellings and duplexes shall be protected by an automatic sprinkler system. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.450 CFC Chapter 9, Section 903.3.5—Water supplies.

Section 903.3.5 of Chapter 9 of the California Fire Code is amended by the addition of Section 903.3.5.3 to read as follows:

903.3.5.3 Hydraulic calculations margin. Fire protection system hydraulic calculations shall include a 10 percent safety margin between the available water supply and the required system supply. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.460 CFC Chapter 9, Section 903.3.10.1—Floor control valves.

Section 903.3.10 of Chapter 9 of the California Fire Code is amended by the addition of Section 903.3.10.1 to read as follows:

903.3.10.1 Control valves. Fire Sprinkler system floor control valves shall be located within stairway designated as "Number 1". (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.470 CFC Chapter 9, Section 903.4.2—Monitoring.

Section 903.4.2 of Chapter 9 of the California Fire Code is amended by the addition of Section 903.4.2.1 to read as follows:

903.4.2.1 Signal reporting. All signals shall transmit to the remote annunciator and supervising station with each device's specific location, type and address. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.480 CFC Chapter 9, Section 903.4.3—Alarms.

Section 903.4.3 of Chapter 9 of the California Fire Code is amended by the addition of the following sentence to read as follows:

The exterior alarm device shall be a horn and strobe device or a speaker and strobe (for voice evacuation systems), located on the address side of the building, 10 feet above grade with no building obstructions and closest to the location of the fire department connection. This device shall be operable on any alarm. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.490 CFC Chapter 9, Section 903.4.3—Alarms.

Section 903.4.3 of Chapter 9 of the California Fire Code is amended by the addition of Sections 903.4.3.1 and 903.4.3.2 to read as follows:

903.4.3.1 Alarms. At least one (1) additional horn and strobe device is required on the interior of a building at the main entrance or in a location as approved by the Fire Code Official.

903.4.3.2 Manual pull station. At least one (1) manual pull station is required on the interior of a building at the main entrance or in a location as approved by the Fire Code Official. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.500 CFC Chapter 9, Section 903.4—Sprinkler system supervision and alarms.

Section 903.4 of Chapter 9 of the California Fire Code is amended by the addition of Section 903.4.4 to read as follows:

903.4.4 Remote annunciator. A remote annunciator shall be provided at the main entrance, the first suite in a multi suite building, or in a location as approved by the Fire Code Official. The remote annunciator shall be key operated and have the capability to silence and reset the system, or by other approved means. The visual description shall lock in until the system is reset and shall not be cancelled by the operation of an audible alarm-silencing switch. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.510 CFC Chapter 9, Section 905.1—General.

Section 905.1 of Chapter 9 of the California Fire Code is amended by the addition of Section 905.1.1 to read as follows:

905.1.1 Design. All standpipe systems, except Class II systems, shall be designed to deliver a minimum of 125 psi at the discharge of all standpipe outlets. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.520 CFC Chapter 9, Section 905.4 Subsection 1—Location of Class I standpipe hose connections.

Section 905.4 Subsection 1 of Chapter 9 of the California Fire Code is amended to read as follows:

1. In every required interior or exterior stairway, a hose connection shall be provided for each floor level. Hose connection shall be located at the floor landing of each floor, unless otherwise ap-

proved by the Fire Code Official. See California Building Code Section 909.20.2.3 for additional provisions in smokeproof enclosures. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.530 CFC Chapter 9, Section 907.1—General.

Section 907.1 of Chapter 9 of the California Fire Code is amended by the addition of Sections 907.1.6 through 907.1.10 to read as follows:

907.1.6 Voluntary. Any fire alarm system not required by this code or the California Building Code shall be furnished for complete protection and meet all requirements of this code and the California Building Code, unless approved by the Fire Code Official.

907.1.7 Evacuation. Buildings over 3 stories may be required to provide building evacuation based on the floor of alarm, the floor above and the floor below, in lieu of a general alarm, at the discretion of the Fire Code Official.

907.1.8 Control panels. Fire alarm system control panels, including sprinkler monitoring panels, shall be utilized for connecting and supervising fire alarm and/or fire related equipment only. Security or similar devices shall not be connected to a fire alarm or sprinkler monitoring control panel. The use of control panels capable of this feature is subject to the following:

1. The owner of the facility where the panel is being installed shall provide an original letter, on company letterhead, to the Long Beach Fire Department stating that not now, nor in the future, will security or similar equipment be connected to the fire alarm or sprinkler monitoring control panel.

2. New and/or existing control panels installed after the adoption of this ordinance found to be in violation of this requirement shall be subject to corrective action, as determined by the Fire Code Official.

907.1.9 Remote annunciator. A remote annunciator shall be provided at the main entrance, the first suite in a multi suite building, or in a location as approved by the Fire Code Official. The remote annunciator shall have the capability to silence and reset the system via a key located in the Knox box, or other approved means.

907.1.10 Alarms. Where fire alarm systems are installed in non-sprinklered buildings an exterior horn and strobe device shall be installed and located on the address side of the building closest to the location of the remote annunciator. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.540 CFC Chapter 9, Section 907.3.1—Duct smoke detectors.

Section 907.3.1 of Chapter 9 of the California Fire Code is amended to read as follows:

907.3.1 Duct smoke detectors. Smoke detectors installed in ducts shall be listed for the air velocity, temperature and humidity present in the duct. Duct smoke detectors shall be connected to the building's fire alarm system or sprinkler monitoring system, when one is installed. Activation of a duct smoke detector shall initiate a visible and audible supervisory signal at a constantly attended location and shall perform the intended fire safety function in accordance with this code and the California Mechanical Code. Duct smoke detectors shall not be used as a substitute for required open area detection. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.550 CFC Chapter 9, Section 907.3.1 Exception 2—Duct smoke detectors.

Section 907.3.1 Exception 2 of Chapter 9 of the California Fire Code is amended to read as follows:

2. In occupancies not required to be equipped with a fire alarm or sprinkler monitoring system, actuation of a duct smoke detector shall activate a visible and audible signal in an approved location. Duct smoke detector trouble condition shall activate a visible or audible signal in an approved location and shall be identified as an air duct detector trouble. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.560 CFC Chapter 9, Section 907—Fire alarm and detection systems.

Section 907 of Chapter 9 of the California Fire Code is amended by the addition of Sections 907.11 and 907.12 to read as follows:

907.11 Fire alarm upgrade. All existing multi-family residential, hotels, motels and high-rise buildings shall upgrade the existing fire alarm system to current code, at the time of replacement of the existing non-functioning fire alarm control panel.

907.12 Firefighter smoke removal system. A natural or mechanical Fire Department approved ventilation system for the removal of products of combustion shall be provided above and below grade on every level, at the discretion of the Fire Code Official, and shall consist of one of the following:

1. Panels or windows in the exterior walls which can be opened remotely from an approved location other than the fire floor. Such venting facilities shall be provided at the rate of twenty square feet per lineal feet of exterior wall in each story and shall be distributed around the perimeter at not more than fifty-foot intervals. Such windows or panels and their controls shall be clearly identified.

Exception: When a complete automatic fire extinguishing system is installed, windows or panels manually openable from within the fire floor or approved fixed tempered glass may be used in lieu of the remotely operated openable panels and windows. Such windows shall be clearly identified and shall be of the size and spacing called for above.

2. When a complete and approved automatic fire extinguishing system is installed, the mechanical air-handling equipment may be designed to accomplish smoke removal. Under fire conditions, the return and exhaust air shall be moved directly to the outside without recirculation to other sections of the building. The air-handling system shall provide a minimum of one exhaust air change each ten minutes for the area involved. The system shall utilize a firefighter smoke exhaust panel located at the main entrance to the building or as required by the Fire Code Official and shall be permanently labeled "Fire Department Smoke Evacuation Use Only". Operation of the system shall be by the use of a Knox key switch.

3. Any other design which will produce equivalent results as approved by the Fire Code Official. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.570 CFC Chapter 9, Section 910.3—Smoke and heat vents.

Section 910.3 of Chapter 9 of the California Fire Code is amended to read as follows:

910.3 Smoke and heat vents. The design and installation of smoke and heat vents shall be in accordance with Sections 910.3.1 through 910.3.6. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.580 CFC Chapter 9, Section 910.3—Smoke and heat vents.

Section 910.3 of Chapter 9 of the California Fire Code is amended by the addition of Section 910.3.6 to read as follows:

910.3.6 Sprinklered buildings. Smoke and heat vents fusible links shall be designed at a minimum of 100 degrees above the temperature rating of the fire sprinklers. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.590 CFC Chapter 9, Section 912.1—Installation.

Section 912.1 of Chapter 9 of the California Fire Code is amended by the addition of Section 912.1.1 to read as follows:

912.1.1 Design. Fire department connections, where required, shall be provided with a minimum number of two (2) 2-1/2 inch inlets, regardless of the size of the fire sprinkler system. Where fire protection system demands are in excess of 1,000 gpm a minimum of four (4) 2-1/2 inch inlets shall be provided.

Hazardous locations, high-rise buildings or where fire protection system demands are in excess of 2,000 gpm, a second fire department connec-

tion utilizing four (4) 2-½ inch inlets may be required at the discretion of the Fire Code Official. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.600 CFC Chapter 9, Section 912.2.1—Visible location.

Section 912.2.1 of Chapter 9 of the California Fire Code is amended by the addition of the following paragraph to read as follows:

Fire department connections shall be located on the address side of the building or structure and shall be within 150 feet of a public fire hydrant, except as required by the California Fire Code Section 507.5.1.1, or as approved by the Fire Code Official. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.610 CFC Chapter 9, Section 912.4—Access.

Section 912.4 of Chapter 9 of the California Fire Code is amended by the addition of the following paragraph to read as follows:

Fire department connections, where located in landscaping or other similar areas, shall be provided with a minimum 3-foot concrete pad around the fire department connection, and an approved concrete pathway leading to the fire department connection. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.620 CFC Chapter 10, Section 1003—General means of egress.

Section 1003 of Chapter 10 of the California Fire Code is amended by the addition of Section 1003.8 to read as follows:

1003.8 Protection of means of egress. When the Fire Code Official determines that means of egress require protection from possible vehicular damage, crash posts shall be installed in accordance with Section 312 Vehicle Impact Protection. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.630 CFC Chapter 10, Section 1011.12—Stairway to roof.

Section 1011.12 of Chapter 10 of the California Fire Code is amended by addition of Sections 1011.12.3 and 1011.12.4 to read as follows:

1011.12.3 Ladder. A fixed ladder shall be provided for access to the hatch or trap door.

1011.12.4 Stairway 1. When a stairway to the roof is required, it shall be designated "Stairway 1". (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.640 CFC Chapter 23, Section 2303.1.1—Protection of dispensing devices.

Section 2303.1.1 of Chapter 23 of the California Fire Code is amended by the addition of the following paragraph to read as follows:

Dispensing devices shall be protected against physical damage from vehicles by mounting on a concrete island 6 inches or more in height or by other approved methods. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.650 CFC Chapter 23, Section 2306.7.9.2—Vapor-processing systems.

Section 2306.7.9.2 of Chapter 23 of the California Fire Code is amended to read as follows:

2306.7.9.2 Vapor-processing systems. Vapor-processing systems shall comply with Sections 2306.7.9.2.1 through 2306.7.9.2.10. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.660 CFC Chapter 23, Section 2306.7.9.2—Vapor-processing system.

Section 2306.7.9.2 of Chapter 23 of the California Fire Code is amended by the addition of Sections 2306.7.9.2.5 through 2306.7.9.2.10 to read as follows:

2306.7.9.2.5 Component design. If a component is likely to contain a flammable vapor/air mixture under operating conditions and can fail in a manner, which could ignite the mixture, the

component shall be designed to withstand an internal explosion without failure to the outside and protected to prevent flame propagation to other parts of the system.

2306.7.9.2.6 Fire checks. Approved fire checks or other positive means of automatic isolation of underground storage tanks shall be installed in vapor-return piping to prevent a flashback from reaching the underground tanks. Such devices also shall be installed in all vapor/air piping as close as practical to each burner or group of burners in a vapor incineration unit, and in all vapor-transfer piping as close as practical to refrigeration, absorption or similar types of processing equipment.

2306.7.9.2.7 Vent termination. Vents from vapor-processing units shall not be less than 12 feet above adjacent ground level and not less than 8 feet above the processing unit itself. Vent outlets shall be directed and located such that flammable vapors will not accumulate, travel to an unsafe location or enter buildings.

2306.7.9.2.8 Electrical equipment. Electrical equipment shall be in accordance with the California Electrical Code.

2306.7.9.2.9 Site control. Fences, bumper posts or other control measures shall be provided where necessary to protect from tampering, trespassing and vehicle traffic. The area within 15 feet of the installed vapor-processing unit shall be kept clear of combustible materials.

2306.7.9.2.10 Maintenance, tests and inspection. Vapor-recovery and vapor-processing equipment shall be subject to periodic maintenance, tests and inspections. Maintenance, tests and inspections set forth in the listing document, or other tests required by the Fire Code Official, shall be the responsibility of the owner or occupant of the premises on which such equipment is located.

Maintenance on vapor-recovery system or vapor-processing equipment shall be performed by the manufacturer of the affected equipment, or an equally qualified person. Written records of maintenance, tests, inspections and the results and recommendations shall be maintained on the premises where the equipment is located, and shall be made available to the Fire Code Official on request.

Incidents involving leaks, fires, explosions, overheating or requiring shutting down equipment, other than for routine maintenance or tests, shall be immediately reported to the Fire Department. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.670 CFC Chapter 35—Welding and other hot work.

Chapter 35 of the California Fire Code is amended by the addition of Sections 3511 and 3512 to read as follows:

SECTION 3511 - WELDING AND CUTTING ABOARD VESSELS

3511.1 General. No person shall perform any welding or cutting operations aboard any vessel moored or anchored in the waterfront facilities under the jurisdiction of the Long Beach Harbor Department without first complying with the regulations of the Port of Long Beach Tariff and notifying the Fire Department.

3511.2 Conditions. No person shall perform any welding or cutting operations aboard any vessel moored, anchored or in dry-dock or on any waterfront facility within the corporate limits of the City, which are not included and regulated in Section 3510.1 above, at any yacht moorage, shipyard, boat landing or marina without first notifying and receiving permission from the proper authority as hereinafter defined:

1. Proper authority for a yacht moorage, shipyard, boat landing or marina shall mean the manager or owner. Prior to giving permission to do welding or cutting, a permit shall be obtained from the Fire Department.

2. Proper authority for any area not covered in (1) shall be the Fire Code Official.

3511.3 Special hazards. Welding or cutting shall be prohibited aboard any vessel in congested moorage, except as approved by the Fire Code Official or in an approved shipyard site where adequate fire protection, as approved by the Fire Code Official, is provided. Vessels shall be located in such a manner as to facilitate their quick removal in case of fire or other emergency. If an unusual hazard exists which endangers life or prop-

erty, the Fire Code Official may require sufficient and competent personnel to be immediately available to move the vessel in the event of an emergency.

3511.4 Access. Brows, gangways, ladders or other facilities shall be provided for prompt and easy access to a vessel upon which welding or cutting is being conducted. A Jacob's ladder or other suitable equipment may be required to be rigged on the offshore side in such a manner that it can be immediately lowered for a boarding party in the event of an emergency.

3511.5 Prohibitions. Welding and cutting prohibited:

1. Within two hundred feet of any vessel or any transfer apparatus on any waterfront facility while transferring any liquefied petroleum gas, liquefied natural gas, or flammable liquid between such vessel and/or waterfront facility.

2. Within one hundred feet of any vessel or any transfer apparatus on any waterfront facility while transferring any combustible liquid between such vessel and/or waterfront facility.

3511.6 Dangerous conditions. At any time, the General Manager of the Port, the Director of the Marine Division, or their authorized assistants, the Master of the vessel, the Fire Code Official, or any other responsible person is aware of a dangerous condition existing during welding or cutting operations, he/she shall immediately cause such operations to be discontinued. Operations shall not be resumed until the danger is abated, and the Fire Department is satisfied that appropriate safety levels are being provided.

3511.7 Cylinder locations. Compressed gas and liquefied petroleum gas cylinders when being used aboard a vessel shall not be placed below decks or under overhanging decks except by permission of the Fire Code Official.

3511.8 Acetylene generators. The use of acetylene generators on vessels or waterfront facilities is prohibited.

3511.9 National standards. All welding and cutting operations covered by this section shall also comply with the requirements of other applicable sections of these regulations and with N.F.P.A. No. 303, "Fire Protection Standard for Marinas and Boatyards."

SECTION 3512 - TESTS AND RECORDS REQUIRED

3512.1 General. Wherever tests are required to determine the safety of welding and cutting operations, records shall be maintained to the satisfaction of the Fire Code Official. Additional tests and inspections shall be required to ensure that safe conditions are maintained and to determine that welding or cutting operations may be conducted with safety under the following conditions:

1. If the work has been delayed for a prolonged period of time.

2. When transfer of ballast or manipulation of valves or closure equipment tends to alter conditions in pipelines, tanks or compartments subject to gas accumulation.

3. If there is removal or disturbance of hatches or separations from adjoining compartments aboard vessels.

4. If vessels or containers are moved from one area to another.

3512.2 Hazardous conditions. If at any time conditions become hazardous, the person making the test or inspection shall immediately notify the responsible person of the hazard. The responsible person shall immediately cause all operations to stop and remain stopped until the hazard is abated, and the Fire Department is satisfied that appropriate safety levels are being provided. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.680 CFC Chapter 36, Section 3604—Fire protection equipment.

Section 3604 of Chapter 36 of the California Fire Code is amended by the addition of Section 3604.7 to read as follows:

3604.7 Cabinets. Cabinets for the protection of fire protection equipment shall be of noncorrosive materials. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.690 CFC Chapter 48, Section 4807.1—Fire safety officers.

Section 4807.1 of Chapter 48 of the California Fire Code is amended to read as follows:

4807.1 Where permits are required by the fire code, a requirement for standby fire safety officers shall be determined by the Fire Code Official on a case-by-case basis. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.700 CFC Chapter 56, Section 5601.1—Scope.

Section 5601.1 of Chapter 56 of the California Fire Code is amended by the addition of Section 5601.1.6 to read as follows:

5601.1.6 Qualifications. The handling and firing of explosives shall be performed only by authorized pyrotechnicians licensed by the State of California, or by employees who are at least 18 years of age under the direct personal supervision of the authorized pyrotechnician. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.710 CFC Chapter 56, Section 5601.2.4—Financial responsibility.

Section 5601.2.4 of Chapter 56 of the California Fire Code is amended to read as follows:

5601.2.4 Financial responsibility. Before a permit required by Chapter 1, Sections 105.5.16, 105.5.44 or 105.5.70 is issued, the permittee shall file with the Fire Code Official a certificate of insurance issued by an insurance company authorized to transact business in the State of California. Such certificate shall certify that the operations under the permit are covered by the policy. The insurance coverage shall not be less than One Million Dollars for injury or death of one person, One Million Dollars for injury or death to more than one person and One Million Dollars for damage to property in any one occurrence. Should the Fire Code Official decide that the activities of the permittee should be supervised by employees of the Fire Department, then the permittee shall furnish to the Fire Code Official the original or certified copy of the policy of insurance in the amounts above provided. The City of Long Beach, its officers, agents, employees and volunteers shall be named parties insured under said policy insofar as the activities of such officers and employees pertain to operations of permittee under the permit. The policy of insurance shall be approved by Risk Management as to sufficiency and the City Attorney as to form. Upon approval, the policy of insurance will be returned if permittee files a certificate of insurance issued by the insurance carrier. No insurance will be required if the permittee is a public agency. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.720 CFC Chapter 56, Section 5608—Fireworks display.

Section 5608 of Chapter 56 of the California Fire Code is amended by the addition of Sections 5608.1.2 and 5608.1.3 to read as follows:

5608.1.2 Prohibition. Except as hereinafter provided, it shall be unlawful for any person to possess, store, offer for sale, expose for sale, sell at retail, or use or explode any fireworks, provided that the Fire Code Official shall have power to adopt reasonable rules and regulations for the granting of permits for supervised public displays of fireworks by a jurisdiction, fair associations, amusement parks, other organizations or for the use of fireworks by artisans in pursuit of their trade. Every such use or display shall be handled by a competent operator approved by the Fire Code Official and shall be of such character and so located, discharged or fired so as, in the opinion of the Fire Code Official after proper investigation, not to be hazardous to property or to endanger any person.

5608.1.3 Financial responsibility. Before a permit required by Chapter 1, Section 105.6.66 is issued, the permittee shall file with the Fire Code Official a certificate of insurance issued by an insurance company authorized to transact business in the State of California. Such certificate shall certify that the operations under the permit are covered by the policy. The insurance coverage shall not be less than One Million Dollars for injury or death of one person, One Million Dol-

lars for injury or death to more than one person and One Million Dollars for damage to property in any one occurrence. Should the Fire Code Official decide that the activities of the permittee should be supervised by employees of the Fire Department, then the permittee shall furnish to the Fire Code Official the original or certified copy of the policy of insurance in the amounts above provided. The City of Long Beach, its officers, agents, employees and volunteers shall be named parties insured under said policy insofar as the activities of such officers and employees pertain to operations of permittee under the permit. The policy of insurance shall be approved by Risk Management as to sufficiency and the City Attorney as to form. Upon approval, the policy of insurance will be returned if permittee files a certificate of insurance issued by the insurance carrier. No insurance will be required if the permittee is a public agency. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.730 CFC Chapter 57, Section 5705.3.5.2 Subsection 7—Group R occupancies.

Section 5705.3.5.2 Subsection 7 of Chapter 57 of the California Fire Code is amended to read as follows:

7. Group R occupancies: Quantities in Group R occupancies and accompanying attached or detached garages shall not exceed that which is necessary for maintenance or equipment operation and shall not exceed five gallons in non-sprinklered building or ten gallons in sprinklered buildings. Containers shall be listed or approved for the specific product to be stored and shall have an exterior label identifying the product in the container. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.740 CFC Chapter 61, Section 6101.3—Construction documents.

Section 6101.3 of Chapter 61 of the California Fire Code is amended to read as follows:

6101.3 Construction documents. The installer shall submit construction documents for any single or multi LP-gas container or system installation. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.750 CFC Chapter 61, Section 6101—General.

Section 6101 of Chapter 61 of the California Fire Code is amended by the addition of Section 6101.4 to read as follows:

6101.4 Inside storage or use. No liquefied petroleum gases of any type or mixture shall be permitted in any occupancy either for sale, use or storage without the approval of the Fire Code Official. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.760 CFC Chapter 61, Section 6103.2.2—Industrial vehicles and floor maintenance machines.

Section 6103.2.2 of Chapter 61 of the California Fire Code is amended by the addition of Section 6103.2.2.1 to read as follows:

6103.2.2.1 Portable cylinders. The use of portable cylinders of liquefied petroleum gas as motorized equipment fuel in occupancies is limited as follows: Liquefied petroleum gas fuel tanks on motorized equipment are limited to two per vehicle, one in storage and one in use, with a combined capacity of all tanks not to exceed fifty pounds. Refilling or exchanging of tanks shall not be permitted within the occupancy and shall be permitted only in approved locations as determined by the Fire Code Official. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.770 CFC Chapter 61, Section 6104.3—Container location.

Section 6104.3 of Chapter 61 of the California Fire Code is amended by the addition of Section 6104.3.3 to read as follows:

6104.3.3 Tank orientation. Unless special protection is provided and approved by the Fire Code Official, containers of liquid petroleum gas shall be oriented so that their longitudinal axes do not point toward other liquid petroleum containers, vital process equipment, control rooms, loading

stations, flammable liquid storage tanks or required fire access roads. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.780 CFC Appendix B, Table B105.1(1)—Required fire flow for one- and two-family dwellings, Group R-3 and R-4 buildings and townhouses.

Table B105.1(1) of Appendix B of the California Fire Code is amended to read as follows:

TABLE B105.1(1)
REQUIRED FIRE-FLOW FOR ONE- AND TWO-FAMILY DWELLINGS, GROUP R-3 AND R-4 BUILDINGS AND TOWNHOUSES

FIRE-FLOW CALCULATION AREA (square feet)	AUTOMATIC SPRINKLER SYSTEM (Design Standard)	MINIMUM FIREFLOW (gallons per minute)	FLOW DURATION (hours)
0—3,600	No automatic sprinkler system	1,000	1
3,601 and greater	No automatic sprinkler system	Value in Table B105.1(2)	Duration in Table B105.1(2) at the required fire-flow rate
0—3,600	Section 903.3.1.3 of the *California Fire Code* or Section 313.3 of the *California Residential Code*	1, 000	1
3,601 and greater	Section 903.3.1.3 of the *California Fire Code* or Section 313.3 of the *California Residential Code*	1/2 value in Table B105.1(2) with a minimum of 1,000	1

For SI: 1 square foot = 0.0929 m^2. 1 gallon per minute = 3.785 L/m.

(ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.48.790 CFC Appendix B, Table B105.2—Required fire flow for buildings other than one- and two-family dwellings, Group R-3 and R-4 buildings and townhouses.

Table B105.2 of Appendix B of the California Fire Code is amended to read as follows:

TABLE B105.2
REQUIRED FIRE-FLOW FOR BUILDINGS OTHER THAN ONE- AND TWO-FAMILY DWELLINGS, GROUP R-3 AND R-4 BUILDINGS AND TOWNHOUSES

AUTOMATIC SPRINKLER SYSTEM (Design Standard)	MINIMUM FIRE-FLOW (gallons per minute)	FLOW DURATION (hours)
No automatic sprinkler system	Value in Table B105.1(2)	Duration in Table B105.1(2)
Section 903.3.1.1 of the *California Fire Code*	50% of the value in Table B105.1(2) [a]	Duration in Table B105.1(2) at the reduced flow rate
Section 903.3.1.2 of the *California Fire Code*	50% of the value in Table B105.1(2) [b]	Duration in Table B105.1(2) at the reduced flow rate

For SI: 1 gallon per minute = 3.785 L/m.

a. The reduced fire-flow shall be not less than 1,500 gallons per minute.

b. The reduced fire-flow shall be not less than 1,500 gallons per minute.

(ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

CHAPTER 18.49 EXISTING BUILDING CODE*

18.49.010 Adoption of California Existing Building Code.

The City Council adopts and incorporates by reference as though set forth in full in this chapter the 2025 Edition of the California Existing Building Code (herein referred to as "California Existing Building Code"). The California Existing Building Code is Part 10 of the California Code of Regulations, Title 24, also referred to as the California Building Standards Code. This part is based on the provisions of the 2024 Edition of the International Existing Building Code (herein referred to as the "International Existing Building Code") as developed by the International Code Council with necessary California amendments. The following appendix and chapters of the California Existing Building Code are included: Appendix A, Chapters A1, A2, A3, A4, and A5. The following subsections, sections, chapters or appendices of the California Existing Building Code are deleted: Sections 101 through 117 of Chapter 1, Division II, 301.3.3 and 301.4; Chapters 12 through 14; Appendices B through E; and Resource A.

The adoption of the California Existing Building Code is subject to the changes, amendments and modifications to said code as provided in this chapter, and certain provisions of the Long Beach Municipal Code, which shall remain in full force and effect as provided in this title. Such codes and code provisions shall constitute and be known as the Long Beach Existing Building Code. A copy of the California Existing Building Code, printed as code in book form, shall be on file in the Office of the City Clerk. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

***Editor's note**—ORD-19-0031 § 1(Exh. A), adopted Nov. 19, 2019, amended Ch. 18.49 in its entirety to read as herein set out. Former Ch. 18.49, §§ 18.49.010—18.49.070, pertained to similar subject matter, and derived from ORD-16-0026 § 1(Exh. A), 2016.

18.49.020 Amend CEBC Section 201.4—Terms not defined.

Section 201.4 of the California Existing Building Code is amended to read as follows:

201.4 Terms not defined. Where terms are not defined through the methods authorized by this section, such terms shall have ordinarily accepted meanings such as the context implies. Webster's Third New International Dictionary of the English Language, Unabridged, shall be considered as providing ordinarily accepted meanings. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.49.025 Amend CEBC Section 502.4—Existing structural elements carrying lateral load.

Section 502.4 of the California Existing Building Code is amended to read as follows:

502.4 Existing structural elements carrying lateral load. Where the addition is structurally independent of the existing structure, existing lateral load-carrying structural elements shall be permitted to remain unaltered. Where the addition is not structurally independent of the existing structure, the lateral force-resisting system of the existing structure and its addition acting together as a single structure shall comply with the requirements of Section 1609 of the California Building Code and with Section 304.3.1 of this code. Alternative procedures to demonstrate compliance with Section 1609 of the California Building Code and Section 304.3.1 of this code, as determined by the Building Official, may be used. Where the existing lateral system consists of unreinforced masonry, refer to Chapter 18.68 of the Long Beach Municipal Code.

Exceptions:

1. Except for unreinforced masonry buildings or structures, any existing lateral load-carrying structural element whose demand-capacity ratio with the addition considered is not more than 10 percent greater than its demand-capacity ratio with the addition ignored shall be permitted to remain unaltered. For purposes of calculating de-

mand-capacity ratios, the demand shall consider applicable load combinations with design lateral loads or forces in accordance with Sections 1609 and 1613 of the California Building Code. For purposes of this exception, comparisons of demand-capacity ratios and calculation of design lateral loads, forces and capacities shall account for the cumulative effects of additions and alterations since original construction. When calculating demand-capacity ratios for wind, the date of original construction shall be permitted to be taken as the date of completion of a prior addition, alteration or repair in compliance with Section 1609 of the California Building Code or the code wind forces in effect at the time. When calculating demand-capacity ratios for earthquake, the date of original construction shall be permitted to be taken as the date of completion of a prior addition, alteration or repair in compliance with Section 304.3.1 or the full seismic forces in effect at the time.

2. Buildings of Group R occupancy with not more than five dwelling units used solely for residential purposes where the existing building and the addition together comply with the conventional light-frame construction methods of the California Building Code or the provisions of the California Residential Code. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.49.026 Amend CEBC Section 503.4—Existing structural elements carrying lateral load.

Section 503.4 of the California Existing Building Code is amended to read as follows:

503.4 Existing structural elements carrying lateral load. Except as permitted by Section 503.13, where the alteration increases design lateral loads, results in a prohibited structural irregularity as defined in ASCE 7, or decreases the capacity of any existing lateral load-carrying structural element, the lateral force-resisting system of the altered building or structure shall meet the requirements of Section 1609 of the California Building Code and with Section 304.3.2 of this code. Alternative procedures to demonstrate compliance with Section 1609 of the California Building Code and Section 304.3.2 of this code, as determined by the Building Official, may be used. Where the lateral force-resisting system consists of unreinforced masonry, refer to Chapter 18.68 of the Long Beach Municipal Code.

Exceptions:

1. Except for unreinforced masonry buildings, any existing lateral load-carrying structural element whose demand-capacity ratio with the alteration considered is not more than 10 percent greater than its demand-capacity ratio with the alteration ignored shall be permitted to remain unaltered. For purposes of calculating demand-capacity ratios, the demand shall consider applicable load combinations with design lateral loads or forces in accordance with Section 1609 of the California Building Code and Section 304.3.1 or 304.3.2 of this code. The same methodology shall be used for the altered and unaltered structures. For purposes of this exception, comparisons of demand-capacity ratios and calculation of design lateral loads, forces and capacities shall account for the cumulative effects of additions and alterations since original construction. When calculating demand-capacity ratios for wind, the date of original construction shall be permitted to be taken as the date of completion of a prior addition, alteration or repair in compliance with Section 1609 of the California Building Code or the code wind forces in effect at the time. When calculating demand-capacity ratios for earthquake, the date of original construction shall be permitted to be taken as the date of completion of a prior addition, alteration or repair in compliance with Section 304.3.1 or Section 304.3.2, Item 1 or 3, or the full or reduced seismic forces in effect at the time.

2. Buildings in which the increase in the demand-capacity ratio is due entirely to the addition of rooftop-supported mechanical equipment individually having an operating weight less than 400 pounds (181.4 kg) and where the total additional weight of all rooftop equipment placed after initial construction of the building is less than 10

percent of the roof dead load. For purposes of this exception, "roof" shall mean the roof level above a particular story.

3. Increases in the demand-capacity ratio due to lateral loads from seismic forces need not be evaluated for the installation of rooftop photovoltaic panel systems where the additional roof dead load due to the system, including ballast where applicable, does not exceed 5 pounds per square foot (psf) (0.2394 kN/m^2) and does not exceed 10 percent of the dead load of the existing roof. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.49.030 Amend CEBC Section 506.1—Compliance.

Section 506.1 of the California Existing Building Code is amended to read as follows:

506.1 Compliance. A change of use or occupancy shall not be made in any building unless that building is made to comply with the requirements of the California Building Code for the use or occupancy. Changes in use or occupancy in a building or portion thereof shall be such that the existing building is not less complying with the provisions of this code than the existing building or structure was prior to the change. Subject to the approval of the Building Official, the use or occupancy of existing buildings shall be permitted without conforming to all of the requirements of this code for the new use or occupancy, provided that the new use or occupancy is less hazardous, based on life and fire risk, than the existing use or occupancy. For the purpose of this section, the order of least hazardous group to highest hazardous group is as follows:

Group U (least hazardous group)

Groups R-3 and R-3.1

Group S-2

Groups B, C, F, L, M, H and S-1

Groups R-1, R-2, R-2.1 and R-4

Groups A, E and I (highest hazardous group)

Exception: The building or structure need not be made to comply with Chapter 16 of the California Building Code unless required by Section 506.5. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.49.040 Amend CEBC Section 506.1.1—Change in the character of use.

Section 506.1.1 of the California Existing Building Code is amended to read as follows:

506.1.1 Change in the character of use. A change in occupancy with no change of occupancy classification or an increase in occupant load within the same occupancy classification shall not be made to any building or structure that will subject the building or structure to any special provisions of the applicable California Codes, without approval of the Building Official. Compliance shall be only as necessary to meet the specific provisions and is not intended to require the entire building be brought into compliance. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.49.050 Amend CEBC Section 506.5.3—Seismic loads.

Section 506.5.3 of the California Existing Building Code is amended to read as follows:

506.5.3 Seismic loads (seismic force-resisting system). Where a change of occupancy results in a building being assigned to a higher risk category, the change is from a Group S or Group U occupancy to any occupancy other than Group S or Group U, or the change is to Groups A, E or I occupancies in a building or structure constructed prior to January 9, 1934 and is within the scope of Chapter 18.68 of the Long Beach Municipal Code, the lateral force-resisting system of the building shall comply with Section 304.3.1 for the risk category assigned to the changed occupancy. Where a change of occupancy results in a building being assigned to Risk Category IV and Seismic Design Category D or F, nonstructural components serving any portion of the building changed to Risk Category IV shall comply with the requirements of Section 1613 of the California Building Code

or shall comply with ASCE 41 using an objective of Operational nonstructural performance with the BSE-1N earthquake hazard level.

Exceptions:

1. Where the area of the new occupancy is less than 10 percent of the building area, the occupancy is not changing from Group S or Group U occupancy, and the new occupancy is not assigned to Risk Category IV, compliance with this section is not required. The cumulative effect of occupancy changes over time shall be considered.

2. Where a change of use results in a building or structure being reclassified from Risk Category I or II to Risk Category III and the seismic coefficient, S_{DS}, is less than 0.33, compliance with this section is not required.

3. Unreinforced masonry bearing wall buildings assigned to Risk Category III and to Seismic Design Category A or B, shall be permitted to use Chapter 18.68 of the Long Beach Municipal Code.

4. Where the change is from Group S or Group U occupancy and there is no change of risk category, compliance with Section 304.3.2 shall be permitted.

For a change of occupancy from an existing commercial or industrial use to a residential use that does not result in a higher risk category, refer to Section 503 and Chapter 18.63 of the Long Beach Municipal Code for Alternative Building Standards for Adaptive Reuse Projects. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.49.060 Amend CEBC Section 805.3—Existing structural elements resisting lateral loads.

Section 805.3 of the California Existing Building Code is amended to read as follows:

805.3 Existing structural elements resisting lateral loads. Except as permitted by Section 805.4, where the alteration increases design lateral loads, or where the alteration results in prohibited structural irregularity as defined in ASCE 7, or where the alteration decreases the capacity of any existing lateral load-carrying structural element, the lateral force-resisting system of the altered building or structure shall meet the requirements of Section 1609 of the California Building Code and Section 304.3.2 of this code. Alternative procedures to demonstrate compliance with Section 1609 of the California Building Code and Section 304.3.2 of this code, as determined by the Building Official, may be used. Where the lateral force-resisting system consists of unreinforced masonry, refer to Chapter 18.68 of the Long Beach Municipal Code.

Exceptions:

1. Any existing lateral load-carrying structural element whose demand-capacity ratio with the alteration considered is not more than 10 percent greater than its demand-capacity ratio with the alteration ignored shall be permitted to remain unaltered. For purposes of calculating demand-capacity ratios, the demand shall consider applicable load combinations with design lateral loads or forces in accordance with Section 1609 of the International Building Code and Section 304.3.1 or 304.3.2 of this code. The same methodology shall be used for the altered and unaltered structures. For purposes of this exception, comparisons of demand-capacity ratios and calculation of design lateral loads, forces and capacities shall account for the cumulative effects of additions and alterations since original construction. When calculating demand-capacity ratios for wind, the date of original construction shall be permitted to be taken as the date of completion of a prior addition, alteration or repair in compliance with Section 1609 of the California Building Code or the code wind forces in effect at the time. When calculating demand-capacity ratios for earthquake, the date of original construction shall be permitted to be taken as the date of completion of a prior addition, alteration or repair in compliance with Section 304.3.1 or 304.3.2 Item 1 or 3 or the full or reduced seismic forces in effect at the time.

2. Buildings in which the increase in the demand-capacity ratio is due entirely to the addition of rooftop-supported mechanical equipment individually having an operating weight less than 400 pounds (181.4 kg) and where the total additional weight of all rooftop equipment placed after ini-

tial construction of the building is less than 10 percent of the roof dead load. For purposes of this exception, "roof" shall mean the roof level above a particular story.

3. Increases in the demand-capacity ratio due to lateral loads from seismic forces need not be evaluated for the installation of rooftop photovoltaic panel systems where the additional roof dead load due to the system, including ballast where applicable, does not exceed 5 pounds per square foot (psf) (0.2394 kN/m^2) and does not exceed 10 percent of the dead load of the existing roof. (ORD-25-0019 § 1(Exh. A), 2025)

Editor's note—ORD-25-0019, amended § 18.49.060 in its entirety to read as herein set out. Former § 18.49.060 was entitled "Amend CEBC Section 1401.2—Moved structures, conformance," and derived from: ORD-22-0033 § 1(Exh. A), 2022; and ORD-19-0031 § 1(Exh. A), 2019.

18.49.070 Amend CEBC Section 906.2—Existing structural elements resisting lateral loads.

Section 906.2 of the California Existing Building Code is amended to read as follows:

906.2 Existing structural elements resisting lateral loads. Where work involves a substantial structural alteration, the lateral load-resisting system of the altered building shall be shown to satisfy the requirements of Section 1609 of the International Building Code and Section 304.3.2 of this code. Where the building is assigned to Seismic Design Category D or F, supports and attachments for nonstructural components required to serve any portion of the building with a use included in Risk Category IV shall comply with Section 1613 of the California Building Code or shall comply with ASCE 41 using an objective of Position Retention nonstructural performance with the BSE-1E earthquake hazard level. Alternative procedures to demonstrate compliance with Section 1609 of the California Building Code and Section 304.3.2 of this code, as determined by the Building Official, may be used. Where the lateral force-resisting system consists of unreinforced masonry, refer to Chapter 18.68 of the Long Beach Municipal Code.

Exceptions:

1. Buildings of Group R occupancy with not more than five dwelling or sleeping units used solely for residential purposes that are altered based on the conventional light-frame construction methods of the California Building Code or in compliance with the provisions of the California Residential Code.

2. Where the intended alteration involves only the lowest story of a building, structural components of the lateral load resisting system above that story need not comply with this section. (ORD-25-0019 § 1(Exh. A), 2025)

18.49.080 Amend CEBC Section 1006.3—Seismic loads.

Section 1006.3 of the California Existing Building Code is amended to read as follows:

1006.3 Seismic loads. Where a change of occupancy results in a building being assigned to a higher risk category, the change is from a Group S or Group U occupancy to any occupancy other than Group S or Group U, or the change is to Group A, E or I in a building or structure constructed prior to January 9, 1934 and is within the scope of Chapter 18.68 of the Long Beach Municipal Code, the lateral force-resisting system of the building shall comply with Section 304.3.1 for the risk category assigned to the changed occupancy. Where a change of occupancy results in a building being assigned to Risk Category IV and Seismic Design Category D or F, nonstructural components serving any portion of the building changed to Risk Category IV shall comply with the requirements of Section 1613 of the California Building Code or shall comply with ASCE 41 using an objective of operational nonstructural performance with the BSE-1N earthquake hazard level.

Exceptions:

1. Where a change of use results in a building being reclassified from Risk Category I or II to Risk Category III and the seismic coefficient, S_{DS}, is less than 0.33, compliance with this section is not required.

2. Where the area of the new occupancy is less than 10 percent of the building area, the occupancy is not changing from a Group S or Group U occupancy, and the new occupancy is not assigned to Risk Category IV, compliance with this

section is not required. The cumulative effect of occupancy changes over time shall be considered.

3. Unreinforced masonry bearing wall buildings assigned to Risk Category III and to Seismic Design Category A or B, shall be permitted to use Chapter 18.68 of the Long Beach Municipal Code.

4. Where the change is from Group S or Group U occupancy and there is no change of risk category, compliance with Section 304.3.2 shall be permitted. (ORD-25-0019 § 1(Exh. A), 2025)

18.49.090 Amend CEBC Section 1103.2—Lateral force-resisting system.

Section 1103.2 of the California Existing Building Code is amended to read as follows:

1103.2 Lateral force-resisting system. Where the addition is structurally independent of the existing structure, existing lateral load-carrying structural elements shall be permitted to remain unaltered. Where the addition is not structurally independent of the existing structure, the lateral force-resisting system of the existing structure and its addition acting together as a single structure shall comply with Section 1609 of the California Building Code and Section 304.3.1 of this code. Alternative procedures to demonstrate compliance with Section 1609 of the California Building Code and Section 304.3.1 of this code, as determined by the Building Official, may be used. Where the existing lateral system consists of unreinforced masonry, refer to Chapter 18.68 of the Long Beach Municipal Code.

Exceptions:

1. Buildings of Group R occupancy with not more than five dwelling or sleeping units used solely for residential purposes where the existing building and the addition comply with the conventional light-frame construction methods of the California Building Code or the provisions of the California Residential Code.

2. Except for unreinforced masonry buildings, any existing lateral load-carrying structural element whose demand-capacity ratio with the addition considered is not more than 10 percent greater than its demand-capacity ratio with the addition ignored shall be permitted to remain unaltered. For purposes of calculating demand-capacity ratios, the demand shall consider applicable load combinations with design lateral loads or forces in accordance with Section 1609 of the California Building Code and Section 304.3.1 of this code. For purposes of this exception, comparisons of demand-capacity ratios and calculation of design lateral loads, forces and capacities shall account for the cumulative effects of additions and alterations since original construction.

When calculating demand-capacity ratios for wind, the date of original construction shall be permitted to be taken as the date of completion of a prior addition, alteration or repair in compliance with Section 1609 of the California Building Code or the code wind forces in effect at the time. When calculating demand-capacity ratios for earthquake, the date of original construction shall be permitted to be taken as the date of completion of a prior addition, alteration or repair in compliance with Section 304.3.1 or the full seismic forces in effect at the time. (ORD-25-0019 § 1(Exh. A), 2025)

18.49.100 Amend CEBC Section 1401.2—Conformance.

Section 1401.2 of the California Existing Building Code is amended to read as follows:

1401.2 Conformance. The building shall be safe for human occupancy as determined by the California Fire Code and Chapter 18.45 of the Long Beach Municipal Code. Any repair, alteration or change of occupancy undertaken within the moved structure shall comply with the requirement of this code applicable to the work being performed. Buildings or structures moved into or within the City shall comply with the provisions of this code and Chapter 18.60 of the Long Beach Municipal Code for new buildings or structures, whichever is more restrictive. Any field-fabricated elements shall comply with the requirements of the California Building Code or the California Residential Code as applicable. [HCD 1 & HCD 2] After July 1, 1978, local ordinances or regulations for moved apartment houses and dwellings shall permit the retention of existing materials and meth-

ods of construction, provided the apartment house or dwelling complies with the building standards for foundations applicable to new construction and does not become or continue to be a substandard building. For additional information, see Health and Safety Code Section 17958.9. (ORD-25-0019 § 1(Exh. A), 2025)

CHAPTER 18.50 HISTORICAL BUILDING CODE*

18.50.010 Adoption of California Historical Building Code.

The City Council adopts and incorporates by reference as though set forth in full in this chapter the 2025 Edition of the California Historical Building Code (herein referred to as the "California Historical Building Code"). The California Historical Building Code is Part 8 of the California Code of Regulations, Title 24, also referred to as the California Building Standards Code. This part is developed by the State Historical Building Safety Board.

The adoption of the California Historical Building Code is subject to the changes, amendments and modifications to said code as provided in this chapter, and certain provisions of the Long Beach Municipal Code, which shall remain in full force and effect as provided in this title. Such codes and code provisions shall constitute and be known as the Long Beach Historical Building Code. A copy of the California Historical Building Code, printed as code in book form, shall be on file in the Office of the City Clerk. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.50.020 Amend CHBC Section 8-201—Definitions.

Section 8-201 of the California Historical Building Code is amended the first paragraph to read as follows:

For the purpose of the CHBC, certain terms and phrases, words and their derivatives shall be construed as specified in the chapter. Additional definitions and/or terms may appear in the various other chapters relative to terms or phrases primarily applicable thereto. Any reference to "authority having jurisdiction" does not necessarily preclude the appellate process of Section 8-104.3.

Where terms are not defined through the methods authorized by this section, such terms shall have ordinarily accepted meanings such as the context implies. Webster's Third New International Dictionary of the English Language, Unabridged, shall be considered as providing ordinarily accepted meanings. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.50.030 Amend CHBC Section 8-706.1.2—Evaluation and seismic improvement of URM buildings.

Section 8-706.1.2 of the California Historical Building Code is amended to read as follows:

8-706.1.2 Evaluation and seismic improvements of unreinforced masonry bearing wall buildings shall comply with Chapter 18.68 of the Long Beach Municipal Code, or the California Existing Building Code (CEBC), Appendix A1 2025 Edition if approved by the Building Official, and as modified by the CHBC.

Exceptions:

1. Alternative standards may be used on a case-by-case basis when approved by the Building Official. It shall be permitted to exceed the strength limitation of 100 psi in Chapter 18.68 of the Long Beach Municipal Code or Section A108.2 of the CEBC when test data and building configuration supports higher values, subject to the approval of the Building Official.

2. CEBC Section A102.2 shall not apply to Qualified Historical Buildings in Risk Category III buildings and other structures whose primary occupancies are public assembly with an occupancy load greater than 300. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

***Editor's note**—ORD-19-0031 § 1(Exh. A), adopted Nov. 19, 2019, amended Ch. 18.50 in its entirety to read as herein set out. Former Ch. 18.50, §§ 18.50.010—18.50.070, pertained to similar subject matter, and derived from ORD-16-0026 § 1(Exh. A), 2016.

18.50.040 Amend CHBC Section 8-805.1—Existing solid masonry.

Section 8-805.1 of the California Historical Building Code is amended by replacing the reference to the "2010 Edition of the CEBC" to the "20222025 Edition of the CEBC". (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.50.050 Amend CHBC Section 8-805.2.1—Solid backed stone masonry.

Section 8-805.2.1 of the California Historical Building Code is amended by replacing the reference to the "2009 IEBC" to the "2025 Edition of the CEBC". (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.50.060 Amend CHBC Section 8-805.2.3—Testing of stone masonry.

Section 8-805.2.3 of the California Historical Building Code is amended by replacing the reference to the "2010 CEBC" to the "2025 Edition of the CEBC". (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

CHAPTER 18.51 WILDLAND-URBAN INTERFACE CODE

18.51.010 Adoption of California Wildland-Urban Interface Code.

The City Council adopts and incorporates by reference as though set forth in full in this chapter the 2025 Edition of the California Wildland-Urban Interface Code (herein referred to as the "California WUI Code"). The California WUI Code is Part 7 of the California Code of Regulations, Title 24, also referred to as the California Building Standards Code. This part is based on the provisions of the 2024 Edition of the International Wildland-Urban Interface Code (herein referred to as the "International Wildland-Urban Interface Code") as developed by the International Code Council with necessary California amendments.

The adoption of the California WUI Code and certain provisions of the Long Beach Municipal Code shall remain in full force and effect as provided in this title. Such codes and code provisions shall constitute and be known as the Long Beach WUI Code. A copy of the California WUI Code, printed as code in book form, shall be on file in the office of the City Clerk. (ORD-25-0019 § 1(Exh. A), 2025)

CHAPTER 18.60 MOVING BUILDINGS

18.60.010 Definitions.

The following terms, as used in this chapter, shall have the signification attached to them in this section unless otherwise clearly apparent from the context:

"Building or structure" means and includes a structure or edifice which is more than ten (10) feet in width or more than twelve (12) feet in length, or which contains more than one hundred twenty (120) square feet of floor area.

"Building and structure mover" is a person who undertakes or offers to undertake, or purports to have the capacity, to move a building or structure, or to do building or structure moving work.

"Building or structure moving work" means and includes the moving of a "building or structure", as defined in Subsection 18.60.010.A, in any horizontal direction, and includes the shoring, raising, or lowering of a building or structure preparatory to the actual moving of the building or structure. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.60.020 Permit—Required.

No person shall move a building or structure over, upon or along any street, or from a location on one lot to a location on another lot, or perform any part of such moving work unless the building or structure has first been examined and posted in the manner required in this chapter, and a permit

in writing to do so for each and every separate moving operation has been applied for and obtained from the Building Official. However, any person fully complying with the provisions of this chapter may obtain a permit to move a building or structure to a location outside the City, or to a building or structure mover's yard for storage, or for the severance of a building or structure from real property pursuant to local, State or federal government requirements. In each such instance, no examination, posting or completion bond shall be required, such requirements being waived. However, all such requirements shall be fully complied with prior to the removal of each such building or structure from such storage yard or severance location to a location within the City limits. Nothing in this chapter shall be deemed applicable to the moving of a building or structure from one location on a lot to another location on the same lot. See Chapters 18.04 and 18.07. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.60.030 Permit—Qualification for issuance.

No moving permit shall be issued to any person unless the applicant therefore holds a valid unrevoked state house and building moving, wrecking contractor's license, and has filed with the City a bond or a liability or indemnity policy of insurance as required by the City for a building or structure mover's license. The provisions of this section shall not, however, be deemed to prohibit any general contractor or owner of any building or structure from obtaining a permit to move such building or structure from one location on a lot or parcel to a different location on the same lot or parcel. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.60.040 Permit—Terms and conditions of issuance.

No permit shall be issued to relocate any building or structure which is so constructed or in such condition as to be dangerous; or which is infested with pests or unsanitary; or which is unfit for human habitation, if it is to be so utilized; or which is so dilapidated, defective, unsightly or in such a condition of deterioration or disrepair that its relocation at the proposed site would cause appreciable harm to or be materially detrimental to the property or improvements in the district within a radius of five hundred (500) feet from the proposed site; or if it is determined that it is detrimental to the future development of the area; or if the proposed use is prohibited by the Zoning Regulations of this City; or if the building or structure is of a type prohibited at the proposed location by any other law or ordinance; provided, however, that if the condition of the building or structure, in the judgment of the Building Official, admits of practicable and effective repair, the permit may be issued upon condition as provided in this chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.60.050 Permits—Application—Examination of structure.

A. Before a moving permit is issued, the person or persons proposing to do such work shall pay to the City the fees as required in Section 18.60.200 and shall complete an application form furnished by the Building Official and shall set forth such information thereon as the Building Official may reasonably require in order to carry out the purposes of this chapter. Said official shall then cause to be made an examination of the building or structure proposed to be moved, and the location to which it is proposed to move the same, if such location is within the City and if such examination is required by this chapter. The Building Official shall post the building in the manner specified in Section 18.60.070 and the date of this posting shall commence the seven-day period for the filing of a protest by the property owners within a radius of three hundred (300) feet of the relocation site as specified in this chapter.

B. A separate application upon a form furnished by the Building Official must be filed and a

separate permit obtained for the moving of each separate building or structure, or portion of a building or structure, except that neither posting, examination fee, nor separate permit will be required when a garage is moved with and under the same permit obtained for the moving of a single-family dwelling, provided the moving of the dwelling and garage is completed in one moving operation and such garage and dwelling are to be located on one parcel.

C. The Building Official shall, in granting any moving permit, impose thereon such terms and conditions as it may deem reasonable and proper in accordance with the provisions of this chapter.

D. The terms and conditions upon which each permit is granted shall be written upon the permit, or appended, in writing, thereto.

E. In addition to the posting of the notice, the Building Official shall mail a copy of the notice to each person indicated upon the records of the County Assessor as being the owner of any property within a radius of three hundred (300) feet of the location to which the building or structure is to be moved. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.60.060 Payment of permit fees.

A. Every applicant for a moving permit shall, at the time of application therefore, pay to the City the required permit fees as set forth in Section 18.60.200, and shall complete a permit application upon a form furnished by the Building Official, and shall set forth upon the form the size of building or structure, by street and number, and by legal description of both locations, together with the specific route to be traversed by the building or structure in the process of being moved from one location to another. Upon the same form the applicant shall make an affidavit that, in placing the building or structure in its new location, it shall not be in violation of any of the provisions of this chapter, the zoning regulations, or other law or ordinance applicable to such building or structure.

B. No moving permit shall authorize the moving of more than one building or structure or more than one section or portion of any building or structure, or when such building or structure to be moved is cut into two or more sections or portions; except that one moving permit only shall be required for the moving of a single-family dwelling and garage; provided, however, that neither the garage nor dwelling is cut into sections for the purpose of moving; and further provided, that the moving of the dwelling and garage is completed in one moving operation. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.60.070 Moving notice—Posting—Contents.

A. The moving notices shall be posted by the Building Official and shall be placed conspicuously upon the front and upon the rear of the location to which it is proposed to move a building or structure, and upon the front of the building or structure proposed to be moved. Such notices shall be not less in size than eight (8) inches by ten (10) inches and shall bear, in letters not less than one and one-half (1.5) inches in height, the words "MOVING NOTICE". In addition, such notice shall contain the following information:

1. Name and owner of the building or structure after its relocation;

2. A brief description of the building or structure;

3. Address of the building or structure at its present location;

4. The street and number to which the building or structure is proposed to be moved;

5. The date upon which the building or structure was posted with the notices;

6. The name of the building and structure mover or person who proposes to do the moving work;

7. The name of the Building Official who inspects the building or structure and relocation site.

B. Upon the notice there shall also appear the following:

"Any property owner within a radius of three hundred (300) feet of the relocation site may file a

written protest with the Building Official within seven (7) days of the date of the signing and dating of this notice by the Building Official. In the event of such protest, the Board of Examiners, Appeals and Condemnation will set a date at which time they will hold a hearing and either approve the moving of the building or structure, or sustain the protest." (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.60.080 Notice of decision to grant or deny permit.

If, after making the examination, the Building Official determines, in accordance with the standards set forth in this chapter, that the application for permit should be denied or should be granted under certain specified conditions, he or she shall notify the applicant of his or her decision by letter, postage prepaid, addressed as shown on the application for permit. If such application is to be granted under certain conditions, such conditions shall specifically be set forth in such notice. The decision of the Building Official shall be final and conclusive, and such notice shall so state, unless within seven (7) days after the mailing of such notice, the applicant has filed with the Building Official a written appeal from that official's decision, specifying the grounds of such appeal. Any such appeal shall be heard by the Board of Examiners, Appeals and Condemnation as provided hereinafter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.60.090 Written protests against moving—Hearing.

Any property owner within a radius of three hundred (300) feet of the relocation site may file a written protest with the Building Official within seven (7) days of the date of the posting of the moving notice. In the event of such protest, the Board of Examiners, Appeals and Condemnation will set a date at which time they will hold a hearing and either approve the moving of the building or structure, or sustain the protest. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.60.100 Public hearing on protests—Notice.

If any written protests against the proposed building or structure moving work are filed with the Building Official, and such protests are postmarked on or before the expiration of the seven (7) day posting period, or if the applicant has theretofore filed an appeal from the decision of the Building Official as hereinabove provided, the Building Official shall, within three (3) days following the expiration of the above seven (7) day posting period, present the protest or appeal by the applicant to the Board of Examiners, Appeals and Condemnation at its next regular meeting. The Board of Examiners, Appeals and Condemnation shall set a time for public hearing on such protest, or on such appeal, which time of hearing shall be not less than ten (10) nor more than thirty (30) days from the time the Board of Examiners, Appeals and Condemnation received the protest or appeal. When the time for public hearing has been so set, the Building Official shall mail a notice thereof, postage prepaid, to each person having filed a written protest, at the address, if any, specified thereon. The Building Official shall, in all cases, also send a notice of such hearing by registered mail, postage prepaid, to the applicant, whether or not he has appealed from the decision of the Building Official. Such notice shall also be sent to the applicant's representative if one has been specified. Such notices of public hearing shall be mailed at least five (5) days prior to the date of such hearing. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.60.110 Hearing and determination by Board of Examiners, Appeals and Condemnation.

At the time set for public hearing, the Board of Examiners, Appeals and Condemnation shall hear

and pass upon the protests filed and the applicant's appeal, if any, from the decision of the Building Official. Based upon the evidence adduced at such hearing, or as obtained from an examination made by the Board of Examiners, Appeals and Condemnation of the building or structure, proposed route to be traversed and proposed new location, the Board of Examiners, Appeals and Condemnation may direct the Building Official to deny the application or may direct that such permit be granted by the Building Official on the same terms and conditions previously specified by that official or in accordance with such terms and conditions as the Board of Examiners, Appeals and Condemnation may deem proper in the premises; provided, however, that the Board of Examiners, Appeals and Condemnation shall, in arriving at its determination, be governed by the same standards, limitations and norms as are set forth in Section 18.60.040. The Board of Examiners, Appeals and Condemnation shall not, in any event, order the Building Official to grant such permit under any conditions if the same will result in the moving or relocation of any structure which would be a violation of any City, County or State law, or would clearly inconvenience any considerable number of persons, or would violate or disturb the public welfare, safety or peace. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.60.120 Issuance of permit.

After the moving notices have been in place seven (7) days, and if the Building Official has written a letter of intent to grant, and if no written protest has been filed with the Building Official against the proposed moving, and if the applicant has not appealed from the decision of the Building Official, a moving permit shall be granted in accordance with the conditions specified by the Building Official, upon the filing of the required bond. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.60.130 Bond—Posting required.

Notwithstanding anything to the contrary herein, no moving permit shall be issued unless the applicant first posts with the Building Official a bond or insurance as prescribed in regulations issued by the City Manager pursuant to Section 2.84.040. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.60.140 Bond—Conditions.

Every bond posted pursuant to this section shall be conditioned as follows:

A. Each and all of the terms and conditions of the moving permit shall be complied with to the satisfaction of the Building Official;

B. All of the work required to be done pursuant to the terms and conditions of the moving permit shall be fully performed and completed within the time limit specified in Section 18.60.190. The time limit may be extended for good and sufficient cause by the Building Official pursuant to Section 18.03.050. No such extension of time shall be valid unless written, and no such extension shall release any surety upon any bond. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.60.150 Bond—Notice of default to principal and surety.

A. Whenever the Building Official finds that a default has occurred in the performance of any term or condition of any permit, written notice thereof shall be given to the principal and to the surety on the bond. Such notice shall state the work to be done, the estimated cost thereof, and the period of time deemed by the Building Official to be reasonably necessary for the completion of such work. After receipt of such notice, the surety must, within the time therein specified, either cause the required work to be performed or, failing therein, must pay over to the Building Official the estimated cost of doing the work, as set forth in the notice, plus an additional sum equal to twenty-

five percent (25%) of the estimated cost. Upon the receipt of such money, the City shall proceed, by such mode as it deems convenient, to cause the required work to be performed and completed, but no liability shall be incurred therein other than for the expenditure of the sum of money in hand therefore.

B. If a cash bond has been posted, notice of default, as provided above, shall be given to the principal, and if compliance is not had within the time specified, the City shall proceed without delay and without further notice of proceedings whatever to use the cash deposit, or any portion of such deposit, to cause the required work to be done, by contract or otherwise, in the discretion of the City. The balance, if any, of such cash deposit shall, upon the completion of the work, be returned to the depositor, or to his or her successors or assigns, after deducting the cost of the work, plus twenty-five percent (25%) thereof. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.60.160 Bond—Default—Option of surety.

When any default has occurred on the part of the principal under the provisions of Section 18.60.150, the surety shall have the option, in lieu of completing the work required, to demolish the building or structure, and to clear, clean and restore the site. If the surety defaults, the City shall have the same option. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.60.170 Bond—Term.

The term of each bond furnished pursuant to Sections 18.60.130 through 18.60.180 shall commence upon the date of the posting thereof and shall terminate upon the completion, to the satisfaction of the Building Official, of the performance of all of the terms and conditions of the moving permit. Such completion shall be evidenced by a statement thereof, signed by the Building Official, a copy of which will be sent to any surety or principal upon request. When a cash bond has been posted, the cash shall be returned to the depositor, or to his or her successors or assigns, upon the termination of the bond, except any portion thereof that may have been used or deducted as provided elsewhere in Sections 18.60.130 through 18.60.180. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.60.180 Bond—Rights of access to premises.

The Building Official, the surety, and the duly authorized representative of either, shall have access to the premises described in the moving permit for the purpose of inspecting the progress of the work. In the event of any default in the performance of any term or condition of the moving permit with reference to the relocation of a structure, the surety, or any person employed or engaged on its behalf, or the Building Official, or any person employed or engaged on his or her behalf, shall have the right to go upon the premises to complete the required work or to remove or demolish the building or structure. It is unlawful for the owner, or his or her representatives, successors or assigns, or any other person, to interfere with or obstruct the ingress to or egress from any such premises of any authorized representative or agent of any surety or of the City engaged in the work of completing, demolishing or removing any building or structure for which a moving permit has been issued, after a default has occurred in the performance of the terms or conditions thereof. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.60.190 Expiration of permit—Extension.

Every application for a moving permit issued by the Building Official under the provisions of this chapter shall expire and become null and void at the expiration of a period of ninety (90) days from the date of such application, and every moving permit issued by the Building Official under the provisions of this chapter shall expire and

become null and void if the moving work authorized by such permit is not commenced and completed within sixty (60) days from the date of issuance; provided, however, that the Building Official may extend these periods when the moving of any building or structure is impossible or delayed by reason of inclemency of weather, strikes or other causes not within the control of the mover. If for any reason a moving permit or application therefore is rendered null and void under the provisions of this chapter, and the moving work is desired to be done thereafter, a new application shall be made and a permit obtained from the Building Official, and new fees shall be paid. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.60.200 Fee schedule.

In addition to any other fee or fees required, a moving permit fee and, when required, an examination and posting fee, shall be paid to the Building Official as set forth in the schedule of fees and charges established by City Council resolution. Examinations and posting fees shall be paid prior to any examination or investigation by the Building Official. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.60.210 Route—Approval of Police, Park, and Public Works Departments.

A. Wherever any building or structure is to be moved over or upon a public street or highway within the City, the application therefore shall be submitted to the Police Chief, who shall endorse the approval of the Police Department thereon as to the routes to be traveled and the hours during which moving operations are to be conducted under the proposed permit. If the routes or hours do not meet with the approval of the Police Department, it shall be the duty of the applicant to alter his or her application to include such routes and hours as will meet the approval of the Police Department.

B. Such application shall also be submitted to the Department of Parks, Recreation and Marine and the designated route to be traveled subject to its approval. Applications may also be submitted to the Department of Public Works when in the discretion of the Building Official wheel loads for any given route may be deemed excessive. In those instances, the Department of Public Works may require the applicant to submit wheel size, load, spacing and any other pertinent information. The Department of Public Works may require modification of the loading or shoring of specific structures or such other precautions as it deems necessary to adequately protect the street and those buildings or structures over which the building or structure will pass. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.60.220 Applicability of chapter.

The provisions of this chapter shall not apply to the relocation of buildings or structures to be used by a governmental agency for a governmental purpose. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.62 REPORT ON AVAILABLE OFF-STREET PARKING SPACES UPON RESALE

18.62.010 Intent and purpose.

It is the intent of the City Council to assure that all parties to a transaction involving a sale of a residential building within the City of Long Beach within areas designated by City Council as parking-impacted areas are furnished a report on the availability of legally required off-street parking spaces. It is the purpose of this chapter that the requirement of such a report will reduce violations on existing parcels of residential property and will prevent violations in the future. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.62.020 Definitions.

"Agreement of sale" shall mean any agreement or written instrument which provides that title to any property shall thereafter be transferred from one owner to another owner.

"Common parking" shall mean any parking facility serving more than one (1) dwelling unit with a common entrance and a common exit.

"Owner" shall mean any person, co-partnership, association, corporation or fiduciary having legal or equitable title or any interest in any real property.

"Residential building" shall mean any improved real property designed or permitted to be used for dwelling purposes, situated in the City, and shall include the building or structures located on said improved real property. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.62.030 Report or exemption certificate required.

Upon entering into an agreement of sale or exchange of any residential building in a parking-impacted area, as such an area or areas may be designated from time to time for the purposes of this chapter by resolution of the City Council, unless excluded by Section 18.62.090, the owner or his or her authorized representative shall obtain from the City a report setting forth the legally required off-street parking for such property and a statement as to its availability or lack of availability, or an exemption certificate. The report shall specifically identify any off-street parking spaces which should be used for vehicle parking but are not available for such use because of illegal conversion to another use, or any physical condition which prohibits the use of such spaces for normal parking of an automobile. Said report or exemption certification shall be valid for a period not to exceed six (6) months from date of issue. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.62.040 Application.

Upon application of the owner or his or her authorized agent and accompanied by a fee in or of an amount as set forth in the schedule of fees and charges established by City Council resolution, the Director shall review pertinent City records, cause an on-site inspection of the property as provided by Section 18.62.050, and deliver to the applicant a report on the availability of legally required off-street parking. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.62.050 Inspection.

In addition to the information supplied in Section 18.62.040, the Director shall cause a physical inspection of the subject property or, should entry be refused, the Director shall indicate on said report that entry was refused. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.62.060 Citation.

The Director shall cite any unlawful condition relating to the use and maintenance of off-street parking spaces. Such condition shall be brought into compliance within ninety (90) days of said citation, or within sixty (60) days of close of escrow, whichever comes first. If such compliance is not obtained, formal enforcement proceedings shall be prosecuted as provided by law. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.62.070 Delivery of report.

The report on the availability of legally required off-street parking prepared pursuant to Section 18.62.030 shall be delivered by the owner or the authorized designated representative of the owner to the buyer or transferee of the residential building proper to the consummation of the sale or exchange. The buyer or transferee shall execute a receipt therefore as furnished by the City and

said receipt shall be delivered to the Department as evidence of compliance with the provisions of Section 18.62.030. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.62.080 Exemption certificate.

The following exceptions shall require an exemption certificate in lieu of the parking availability report:

A. Condominiums, townhomes, apartment buildings and similar buildings whose parking is supplied completely by way of a common parking facility;

B. The first sale of a residential building which has never been occupied;

C. A residential building whereby a review of the records indicates that no parking was ever provided at the site. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.62.090 Exclusions.

The provisions of this chapter shall not apply to:

A. Transfers which are required to be preceded by the furnishing to a prospective transferee of a copy of a public report pursuant to Section 11018.1 of the California Business and Professions Code;

B. Transfers pursuant to court order, including, but not limited to, transfers ordered by a probate court in administration of an estate, transfers pursuant to a writ of execution, transfers by a trustee in bankruptcy, transfers by eminent domain, or transfers resulting from a decree for specific performance;

C. Transfers to a mortgagee by a mortgagor in default, transfers to a beneficiary of a deed of trust by a trustor in default, transfers by any foreclosure sale after default, transfers by any foreclosure sale under default in an obligation secured by a mortgage, or transfers by sale under a power of sale after a default in an obligation secured by a deed of trust or secured by any other instrument containing a power of sale;

D. Transfer by a fiduciary in the course of the administration of a guardianship, conservatorship, or trust;

E. Transfers from one co-owner to one or more co-owners;

F. Transfers made to a spouse, or to a person or persons in the lineal, line or consanguinity of one or more of the transferors;

G. Transfers between spouses resulting from a decree of dissolution of a marriage or a decree of legal separation or from a property settlement agreement incidental to such decrees;

H. Transfers by the State Controller in the course of administering the Unclaimed Property Law (Chapter 7 [commencing with Section 1500] of Title 10 of Part 3 of the California Code of Civil Procedure);

I. Transfers to a governmental entity under eminent domain or threat of eminent domain. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.62.100 Penalties.

A. Anyone in violation of the provisions of this chapter shall be guilty of a misdemeanor and upon conviction thereof shall be punishable as provided by the provisions of Section 1.32.010 of the Long Beach Municipal Code.

B. No sale or exchange of residential property shall be invalidated solely because of the failure of any person to comply with any provisions of this chapter unless such failure is an act or omission which would be a valid ground for rescission of such sale or exchange in the absence of this chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.63 ALTERNATIVE BUILDING STANDARDS FOR ADAPTIVE REUSE PROJECTS

18.63.010 Purpose.

The Adaptive Reuse Ordinance in the Zoning Regulations expanded the scope of eligible and underutilized buildings or structures that have great potential to be converted into new uses or occupancy that can benefit from relief of parking standards, setbacks and zoning height limitations. However, key to the success of the Adaptive Reuse Ordinance relies on the ability of the Building Official and Fire Code Official to effectively use their authority to grant code modification or alternative materials, design and methods of construction and equipment to address practical difficulties involved in complying with the strict provisions of the code or consider alternative design or methods not specifically prescribed in the code. Other statutory regulations such as the California Historic Building Code adopted in Chapter 18.50 and the California Existing Building Code adopted in Chapter 18.49, including Sections 17958.11 and 19957 of the California Health and Safety Code, provides the Building Official and Fire Code Official with the ability to consider other alternative building standards. Therefore, the purpose of this chapter is to amend, expand, establish and clarify alternative building standards for the conversion of existing buildings or structures to accommodate new uses or occupancy for other purposes than what it was originally designed for and still provide reasonable use and safety to the building occupants. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.63.020 Applicability.

Projects that meet the definition and applicable requirements of an adaptive reuse project pursuant to the Zoning Regulations may be permitted to use the alternative building standards of this chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.63.030 Alternative Building Standards Manual.

A. Although other chapters or sections of the Long Beach Municipal Code and the most recently adopted edition of the California Building Standards Code are applicable to new construction or a change of use or occupancy, the use of the Alternative Building Standards Manual may be permitted to provide alternative regulations for adaptive reuse projects that meet the applicability requirement of Section 18.63.020.

B. The Building Official and Fire Code Official shall prepare, maintain, and update, as deemed necessary and appropriate, the Alternative Building Standards Manual and shall include technical information and implementation parameters, alternative compliance for technical infeasibility, as well as other rules, requirements and procedures as the City deems necessary, for implementing the provisions of this chapter.

C. The Building Official and Fire Code Official shall develop, as deemed necessary and appropriate, in cooperation with other City departments and stakeholders, informational bulletins, training manuals and educational materials to assist in the implementation of this chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.64 SANDBLASTING

18.64.010 Permit—Required.

A. No person, firm or corporation shall engage in wet or dry sandblasting of the outside any building or structure in the City without first obtaining a permit to do so from the Building Official.

B. The permit is required for the purpose of placing the City on notice regarding intended sandblasting operations, thus making possible the inspection of sandblasting operations in the City so that sandblasting regulations enacted for the protection of the health and property of members of the public may effectively be enforced. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.64.020 Permit—State license required.

No sandblasting permit shall be issued to any person not licensed or otherwise prohibited by State law from engaging in sandblasting operations. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.64.030 Permit—Separate premises.

A separate permit shall be required for each separate premises, court or group of structures to be sandblasted. More than one actual building or structure may be included on a single permit if all the buildings or structures are on one lot or one contiguous parcel of land. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.64.040 Permit—Application.

Each application for permit shall contain the following information:

A. The name and address of the person or company applying for the permit;

B. The location of the job;

C. The building or structure or portion thereof to be sandblasted;

D. Such other information as the Building Official shall reasonably require to aid in the proper inspection and enforcement of City sandblasting regulations. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.64.050 Permit—Inspection fee.

No sandblasting permit shall be issued prior to the payment of an inspection fee consistent with the fee schedule set forth in Chapter 18.06. No plan examination fee or other type of additional fee described in Chapter 18.06 shall be required. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.64.060 Notice of sandblasting.

Any person, firm or corporation conducting sandblasting in the City shall, not less than forty-eight (48) hours prior to sandblasting, deliver to each residence or business establishment within one hundred (100) feet of all buildings or structures to be sandblasted a written notice stating in substance as follows:

NOTICE OF SANDBLASTING

On, _____
(Date or Dates)
20__, sandblasting will be carried out on the exterior of the building at
(Address of building to be sandblasted)
(Name of company)
whose address is
The sandblasting will be conducted in accordance with Municipal Code Section 18.64.010 et seq., of the City of Long Beach.

_____
(Name of owner or foreman)

_____
(Address of owner or foreman)

(ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.64.070 Dry sandblasting.

No person, firm or corporation shall engage in "dry" sandblasting in the City in the absence of written special permission from the Building Official, such special permission to be granted only if the particular circumstances of the job make wet sandblasting impractical. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.64.080 Permitted hours.

No person, firm or corporation shall engage in sandblasting unless the hours of operation are in accordance with Section 8.80.202 Noise Regulations for Authorized Hours of Operations. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.64.090 Property protection.

No person, firm or corporation shall engage in sandblasting without first protecting adjacent property, public street and pedestrian walkway areas by erecting canvas or other suitable barriers sufficient to protect them from the splashing or blowing of sand or water. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.65 DEMOLITION OF HISTORIC LANDMARKS

18.65.010 Demolition of landmarks prohibited without building permit and funding for replacement structure.

A. No permit to demolish a landmark or contributing structure designated pursuant to Chapter 2.63 may be issued by the Department unless: (1) a building permit has been issued for a replacement structure or project for the property involved; and (2) the applicant has submitted evidence to the satisfaction of the Cultural Heritage Commission that a financial commitment has been obtained by the applicant to assure the completion of the structure or project.

B. Whenever, following action by the Cultural Heritage Commission pursuant to Subsection 18.65.010.A, a permit to demolish a landmark is either issued or denied by the Department, the Director shall immediately notify the applicant and the Cultural Heritage Commission of such issuance. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.65.020 Appeal to City Council.

A. The applicant or any interested person may appeal a decision to issue or withhold a demolition permit by the Director under Section 18.65.010 to the City Council by filing an appeal therefrom with the City Clerk within ten (10) days of notification of the applicant and the Cultural Heritage Commission under Section 18.65.010 of the decision, and no decision shall be final until expiration of that ten-day period. Such appeal shall be set for hearing by the City Council within twenty-one (21) days of filing the appeal, and the applicant shall not be relieved of the requirements of this section until a final decision is rendered by the City Council.

B. On appeal, the City Council shall determine, through factual evidence, whether unusual and compelling circumstances, including extreme economic hardship to the applicant, exist in the case before it, and if it so finds, it shall act on the appeal in such a way as to result in granting of the permit which is the subject matter of the appeal.

C. Both the applicant and appellant, if different from the applicant, shall be notified by mail to the address of the applicant or appellant as indicated on the permit application or appeal of all hearings and decisions made pursuant to this section. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.65.030 Exception.

This chapter shall not apply to any landmark which has been determined by the Fire Code Official and Building Official to be imminently dangerous or to constitute an immediate threat to the public health and safety. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.65.040 Construction.

Nothing in this chapter shall be construed to be contrary to or inconsistent with the provisions of Chapter 12.75 (commencing with Section 7060) of Division 7 of Title 1 of the California Government Code, and should any provision of this chapter be contrary to or inconsistent with the provisions of that Chapter 12.75, then the provisions of Chapter 12.75 shall prevail. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.67 CONSTRUCTION AND DEMOLITION RECYCLING PROGRAM

18.67.005 Purpose.

The State of California through its California Integrated Waste Management Act of 1989, Assembly Bill 939 ("AB 939") requires that each local jurisdiction in the state divert fifty percent (50%) of discarded materials (base year 1990) from landfills by December 31, 2000. Every city and county, including the City, could face fines up to ten thousand dollars ($10,000) a day for not meeting the mandated goal. Approximately twenty-two percent (22%) of the City's solid waste sent to landfills is from construction and demolition activities and the diversion of these materials would have a significant potential for waste reduction and recycling. Reusing and recycling construction demolition materials ("C&D Debris") is essential to further the City's efforts to reduce waste and continue to comply with AB 939. C&D Debris waste reduction and recycling have been proven to reduce the amount of such material which is landfilled, increase worker safety, and be cost effective. To ensure compliance with this chapter and to ensure those contractors complying with this chapter are not placed at a competitive disadvantage, it is necessary to impose a performance security requirement. (Ordinance ORD-07-0025) (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.67.010 Definitions.

For the purposes of this chapter, the following definitions shall apply:

"Applicant" means any individual, firm, limited liability company, association, partnership, political subdivision, government agency, municipality, industry, public or private corporation, or any other entity whatsoever who applies to the City for the applicable permits to undertake any construction, demolition, or renovation project within the City.

"C and D recycling center" means a facility that receives only C and D material that has been separated for reuse prior to receipt, in which the residual (disposed) amount of waste in the material is less than ten percent (10%) of the average weight of material separated for reuse received by the facility over a one-month period.

"City-sponsored project" means a project constructed by the City or a project receiving fifty percent (50%) or more of its financing from the City.

"Class III landfill" means a landfill that accepts nonhazardous resources such as household, commercial, and industrial waste, resulting from construction, remodeling, repair, and demolition operations. A Class III landfill must have a solid waste facilities permit from the California Integrated Waste Management Board (CIWMB) and is regulated by an enforcement agency (as defined in Public Resources Code Section 40130).

"Construction" means the building of any facility or structure or any portion thereof including any tenant improvements to an existing facility or structure.

"Construction and demolition debris (C and D debris)" means building materials and solid waste resulting from construction, remodeling, repair, cleanup, or demolition operations that are not hazardous as defined in California Code of Regulations, Title 22, Sections 66261.3 et seq. This term includes, but is not limited to, asphalt, concrete, Portland cement concrete, brick, lumber, gypsum wallboard, cardboard, and other associated packaging, roofing material, ceramic tile, carpeting, plastic pipe and steel. The material may be commingled with rock, soil, tree stumps, and other vegetative matter resulting from land clearing and landscaping for construction or land development projects.

"Covered project" shall have the meaning set forth in Section 18.67.020.

"Deconstruction" means the careful dismantling of buildings and structures in order to salvage as much material as possible.

"Demolition" means the decimating, razing, ruining, tearing down or wrecking of any facility, structure, pavement or building, whether in whole or in part, whether interior or exterior.

"Disposal" means the final deposition of construction and demolition or inert material, to a Class III landfill.

"Diversion requirement" means the diversion of a percentage of the total construction and demolition debris generated by a project via reuse or recycling, unless the applicant has been granted an exemption pursuant to Section 18.67.070 in which case the diversion requirement shall be the maximum feasible diversion rate established by the Director in relation to the project.

"Divert" means to use material for any purpose other than disposal in a landfill or transformation facility.

"Enforcement agency (EA)" means an enforcement agency as defined in Public Resources Code Section 40130.

"Inert solids/inert waste" means nonliquid solid resources including, but not limited to, soil and concrete, that do not contain hazardous waste or soluble pollutants at concentrations in excess of water quality objectives established by a regional water board pursuant to Division 7 (Sections 13000 et seq.) of the California Water Code and does not contain significant quantities of decomposable solid resources.

"Project" means any activity which requires an application for a building or demolition permit or any similar permit from the City pursuant to Section 18.67.020.

"Recycling" means the process of collecting, sorting, cleansing, treating, and reconstituting materials for the purpose of using the altered form in the manufacture of a new product. Recycling does not include burning, incinerating, or thermally destroying solid waste.

"Renovation" means any change, addition or modification in an existing structure.

"Reuse" means the use, in the same or similar form as it was produced, of a material which might otherwise be discarded.

"Solid waste" means all putrescible and nonputrescible solid, semisolid, and liquid wastes, including garbage, trash, refuse, paper, rubbish, ashes, industrial wastes, demolition and construction wastes, abandoned vehicles and parts thereof, discarded home and industrial appliances, dewatered, treated, or chemically fixed sewage sludge which is not hazardous waste, manure, vegetable or animal solid and semisolid wastes, and other discarded solid and semisolid wastes. "Solid waste" does not include any of the following wastes:

1. Hazardous waste, as defined in Public Resources Code Section 40141;

2. Radioactive waste regulated pursuant to the Radiation Control Law [Chapter 8 (commencing with Section 114960) of Part 9 of Division 104 of the Health and Safety Code];

3. Medical waste regulated pursuant to the Medical Waste Management Act [Part 14 (commencing with Section 117600) of Division 104 of the Health and Safety Code].

"Waste management plan (WMP)" means a completed waste management plan form, approved by the City for the purpose of compliance with this chapter, submitted by the applicant for any covered or noncovered project.

"Waste management plan attachments" means a list of permitted haulers, reuse facilitators, disposal and recycling facilities, conversions for mass to weight, and green building material suggestions. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.67.020 Covered projects.

A. Private projects.

1. Newly constructed buildings or structures.

2. Residential building or structure additions or alterations where the project increases the building's or structure's conditioned area, volume or size.

3. Nonresidential building or structure additions and alterations whenever a permit is required for work.

4. Demolition projects of any valuation.

B. All City-sponsored construction, demolition and renovation projects shall be subject to this chapter, and consequently, shall be considered covered projects.

C. Compliance with this chapter shall be included as a condition of approval on any construction or demolition permit issued for a covered project. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.67.030 Submission of a waste management plan.

A. Applicants for construction or demolition permits involving a covered project shall complete and submit a WMP, on a WMP form approved by the City for this purpose, as part of the application packet for the construction or demolition permit. The completed WMP shall indicate all of the following:

1. The estimated volume or weight of the project C and D debris, by material type, to be generated;

2. The maximum volume or weight of such materials that can feasibly be diverted via reuse or recycling. No more than twenty percent (20%) of the sixty-five percent (65%) diversion rate can be achieved through the recycling or reuse of inert materials unless applicant can demonstrate to the satisfaction of the Director that sufficient structural materials do not exist for recycling or that forty-five percent (45%) diversion of total waste through non-inert materials is not feasible;

3. The vendor or facility where the applicant proposes to use to collect or receive that material; and

4. The estimated volume or weight of C and D debris that will be landfilled in Class III landfills.

B. Calculating volume and weight of material. In estimating the volume or weight of materials identified in the WMP, the applicant shall use the conversion rates approved by the City for this purpose.

C. Deconstruction. In preparing the WMP, applicants for demolition permits involving the removal of all or part of an existing structure shall consider deconstruction to the maximum extent feasible, and shall make the materials generated thereby available for salvage prior to landfilling. Deconstruction can be used to meet the sixty-five percent (65%) diversion requirement provided it is accounted for in the WMP. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-21-0040 § 8, 2021; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.67.040 Waste diversion deposit.

The project applicant shall submit a waste diversion deposit with the WMP. The amount of the performance security shall be calculated as a percentage of the total project valuation as set forth in the schedule of fees and charges established by City Council resolution, provided, however, that the minimum and maximum fees shall be as set forth in the schedule of fees and charges established by City Council resolution. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.67.050 Administrative fee.

The project applicant shall submit an administrative fee with the WMP. The amount of the administrative fee shall be as set forth in the schedule of fees and charges established by City Council resolution. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.67.060 Review of WMP.

A. Notwithstanding any other provisions of this title, no building or demolition permit shall be issued for any covered project unless and until the Director has reviewed the WMP. Approval shall not be required, however, where an emergency demolition is required to protect public health or safety. The Director shall only approve a WMP if he or she first determines that all of the following conditions have been met:

1. The WMP provides all of the information set forth in Section 18.67.030.

2. The WMP indicates that at least sixty-five percent (65%) of all C and D material generated by the project will be diverted or an exemption has been approved pursuant to Section 18.67.080.

3. The applicant has submitted an appropriate waste diversion deposit in compliance with Section 18.67.040.

If the Director determines that these conditions have been met, he or she shall mark the WMP "Approved," return a copy of the WMP to the applicant.

B. If the Director determines that the WMP fails to meet the conditions specified in Subsection 18.67.060.A, he or she shall either:

1. Return the WMP to the applicant marked "Denied," including a statement of reasons.

2. Return the WMP to the applicant marked "Further Explanation Required."

If the applicant determines during the course of the project that the estimated tonnage of material to be generated and or recovered from the project is substantially different from the WMP, applicant shall submit an addendum to the original WMP. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.67.070 Compliance with a WMP.

A. Within ninety (90) days after the completion of any covered project, the applicant shall submit to the Director documentation that it has met the diversion requirement for the project. Applicant shall provide a summary of efforts used to meet the diversion requirement and also provide the following documentation:

1. Receipts from the vendor or facility which collected or received each material showing the actual weight or volume of that material;

2. Weight slips/count of material salvaged or reused in current project;

3. A copy of the previously approved WMP for the project adding the actual volume or weight of each material diverted and landfilled;

4. Any additional information the applicant believes is relevant to determining its efforts to comply in good faith with this chapter.

EXCEPTION: The Building Official may grant extensions of time if the permit applicant submits in writing substantial evidence that unusual conditions or circumstances precluded submittal of documentation demonstrating that the diversion requirement for the project has been met.

B. Weighing of wastes. Applicants shall make reasonable efforts to ensure that all C and D debris diverted or landfilled are measured and recorded using the most accurate method of measurement available. To the extent practical, all C and D debris shall be weighted by measurement on scales. Such scales shall be in compliance with all State and County regulatory requirements for accuracy and maintenance. For C and D debris for which weighing is not practical due to small size or other considerations, a volumetric measurement shall be used. For conversion of volumetric measurements by weight, the applicant shall use the standardized conversion rates approved by the City for this purpose.

C. The Director shall review the information submitted under Subsection 18.67.070.A to determine whether the applicant has complied with the diversion requirement as follows:

1. If the Director determines that the applicant has fully complied with the diversion requirement applicable to the project, he or she shall cause the full waste diversion deposit to be released to the applicant.

2. If the Director determines that the diversion requirement has not been met, he or she shall return only that portion of the performance security equivalent to the portion of C and D debris actually diverted compared to the portion that should have been diverted according to the WMP. Any portion of the waste diversion deposit not released to the applicant shall be forfeited to the City, and shall be used to further develop environmental sustainability efforts within the City. If the Director determines that the applicant has fully failed to comply with the diversion requirement or if the applicant fails to submit the documentation required by Subsection 18.67.070.A within the required time period, then the entire waste diversion deposit shall be forfeited to the City. All forfeited waste diversion deposits shall be used to further develop environmental sustainability ef-

forts within the City. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-21-0040 § 9, 2021; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.67.080 Exemption.

A. Application. If an applicant believes it is infeasible to comply with the diversion requirements of this chapter due to the circumstances delineated in this section, the applicant may apply for an exemption at the time that he or she submits the required WMP. Exemptions may be granted based on the following considerations:

1. An emergency situation exists;
2. Contamination by hazardous substances;
3. Low recyclability of specific materials;
4. Initial tenant or occupant improvements for projects in shell buildings; and
5. Excavated soil and land-clearing debris.

The applicant shall indicate on the WMP the maximum rate of diversion he or she believes is feasible for each material and the specific circumstances that he or she believes make it infeasible to comply with the diversion requirement.

B. Meeting with the Director. The Director shall review the information supplied by the applicant and may meet with the applicant to discuss possible ways of meeting the division requirement. The Director may request that staff from the Department of Public Works Environmental Services Bureau attend this meeting or may require the applicant to request a separate meeting with Department of Public Works Environmental Services Bureau staff. Based on the information supplied by the applicant and, if applicable, Department of Public Works Environmental Services Bureau staff, the Director shall determine whether it is possible for the applicant to meet the division requirement.

C. Granting of exemption. If the Director determines that it is infeasible for the applicant to meet the diversion requirement due to unique circumstances, he or she shall determine the maximum feasible diversion rate for each material and shall indicate this rate on the WMP submitted by the applicant. The Director shall return a copy of the WMP to the applicant marked "Approved Exemption".

D. Denial of exemption. If the Director determines that it is possible for the applicant to meet the diversion requirement, he or she shall inform the applicant in writing. The applicant shall have thirty (30) days to resubmit a WMP form in full compliance with Section 18.67.030. If the applicant fails to resubmit the WMP, or if the resubmitted WMP does not comply with Section 18.67.030, the Director shall deny the WMP. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.67.090 Appeal.

The applicant or any interested person may appeal to a Hearing Officer from any ruling of the Director made pursuant to this chapter in accordance with Section 18.67.070. Notice of any appeal from the ruling of the Director must be filed within ten (10) days of the date that such ruling is made. The decision of the Hearing Officer upon such appeal, relative to any matter within the jurisdiction of the Director, shall be final and shall not be appealable to the City Council or to any other City body or official. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.68 EARTHQUAKE HAZARD REGULATIONS

18.68.010 Purpose.

The purpose of this chapter is to define a systematic procedure for identifying and assessing earthquake generated hazards associated with certain existing structures within the City and to develop a flexible, yet uniform and practical procedure for correcting or reducing those hazards to tolerable hazard levels. It is not the purpose of this chapter to preclude or affect the assessment and abatement, pursuant to existing laws, of other

hazards which may involve fire, exit, plumbing, electrical, and other such problems with existing buildings.

The provisions of this chapter are intended as minimum standards for structural seismic resistance established primarily to reduce the risk of life loss or injury. Compliance with these standards will not necessarily prevent loss of life or injury or prevent earthquake damage to rehabilitated buildings. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.020 Scope.

This chapter shall apply to all Type I, Type II and Type III buildings located within the City and built prior to January 9, 1934. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.021 Definitions.

For the purpose of this chapter, the following definitions shall apply:

"Collar joint" is the vertical space between adjacent wythes and may contain mortar.

"Crosswall" is a wall that meets the requirements of Subsection 18.68.027.D.3. A crosswall is not a shear wall.

"Crosswall shear capacity" is the length of the crosswall times the allowable shear value, v_cL_0.

"Diaphragm edge" is the intersection of the horizontal diaphragm and a shear wall.

"Diaphragm shear capacity" is the depth of the diaphragm times the allowable shear value, v_uD.

"Flexible diaphragm" is a diaphragm of wood construction or other construction of similar flexibility.

"Normal wall" is a wall perpendicular to the direction of seismic forces.

"Open front" is an exterior building wall plane on one side only without vertical elements of the lateral force resisting system in one or more stories.

"Pointing" is the partial reconstruction of the bed joints of a URM wall as defined in Standard No. 24-42. (See Section 18.68.222.)

"UBC" is the 1988 Edition of the Uniform Building Code as published by the International Conference of Building Officials.

"UBC standard" is the 1988 Edition of the Uniform Building Code standard as published by the International Conference of Building Officials.

"Unreinforced masonry bearing wall" is URM wall which provides the vertical support for a floor or roof for which the total superimposed load exceeds one hundred (100) pounds per linear foot of wall.

"Unreinforced masonry (URM) wall" is a masonry wall in which the area of reinforcing steel is less than twenty five percent (25%) of the minimum required by the UBC for reinforced masonry.

"Yield story drift" is the lateral displacement of one level relative to the level above or below at which yield stress is first developed in a frame member. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.022 Symbols and notations.

For the purposes of this chapter, the following symbols and definitions shall apply:

A = Area of unreinforced masonry pier, square inches.

A_b = Area of the bed joints above and below the test specimen for each in place shear test.

C_p = Numerical coefficient as specified in UBC Section 2312(g) and given in UBC Table 23-P and in Table A-23-A.

D = In plane width dimension of pier, inches, or depth of diaphragm, feet.

DCR = Demand capacity ratio specified in Subsection 18.68.027.D.

Fwx = Force applied to a wall at level x, pounds.

H = Lease clear height of opening on either side of pier, inches.

h/t = Height/thickness ratio of URM wall. Height h is measured between wall anchorage levels, and/or slab on grade.

L = Span of diaphragm between shear walls, or span between shear wall and open front, feet.

L_c = Length of crosswall, feet.

L_i = Effective span for an open front building specified in Subsection 18.68.027.D.8, feet.

PD = Superimposed dead load at the top of the pier under consideration, pounds.

P_{D+L} = Actual dead plus live load in place at the time of testing, pounds.

P_W = Weight of wall, pounds.

$\Sigma v_u D$ = Sum of diaphragm shear capacities of both ends of the diaphragm.

ΣW_d = Total dead load tributary to all of the diaphragms coupled at and above the level under consideration, pounds.

$\Sigma\Sigma v_u D$ = For diaphragms coupled with crosswalls $\Sigma\Sigma v_u D$ includes the sum of shear capacities of both ends of diaphragms coupled at and above the level under consideration.

$V_a = v_a A$, the allowable shear in any URM pier, pounds.

V_{ca} = Total shear capacity of crosswalls in the direction of analysis immediately above the diaphragm level being investigated, $S\ v_c L_o$, pounds.

V_{cb} = Total shear capacity of crosswalls in the direction of analysis immediately below the diaphragm level being investigated, $S\ v_c L_o$, pounds.

V_r = Pier rocking shear capacity of any URM wall or wall pier, pounds.

V_{wx} = Total shear force resisted by a shear wall at the level under consideration, pounds.

V_p = Shear force assigned to a pier on the basis of its relative shear rigidity, pounds.

V_S = Shear force assigned to a spandrel on the basis of the shear forces in the adjacent wall piers and tributary dead plus live loads.

V_{test} = Load in pounds at incipient cracking for each in-place masonry shear test per Standard No. 24-40. (See Section 18.68.220.)

v_a = Allowable shear stress for unreinforced masonry, psi.

v_c = Allowable shear value for a crosswall sheathed with any of the materials given in Tables A-23-C or A-23-D, pounds per foot.

v_t = Mortar shear strength as specified in Subsection 18.68.024.C.3.d.

v_{to} = Mortar shear test values as specified in Subsection 18.68.024.C.3.d.

v_u = Allowable shear value for a diaphragm sheathed with any of the materials given in Tables A-23-C or A-23-D, pounds per foot.

W_d = Total dead load tributary to a diaphragm, pounds.

W_w = Total dead load of an unreinforced masonry wall above the level under consideration or above an open front of a building, pounds.

W_{wx} = Dead load of a URM wall assigned to level x halfway above and below the level under consideration. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.023 General requirements.

A. General. All buildings shall have a seismic resisting system conforming with UBC Section 2303(b), except as modified by this chapter.

B. Alterations and repairs. Alterations and repairs required to meet the provisions of this chapter shall comply with all other applicable requirements of this title unless specifically provided for in this chapter.

C. Requirements for plans. The following construction information shall be included in the plans required by this chapter:

1. Dimensioned floor and roof plans showing existing walls and the size and spacing of floor and roof framing members and sheathing materials. The plans shall indicate all existing and new crosswalls and their materials of construction. The

location of the crosswalls and their openings shall be fully dimensioned or drawn to scale on the plans.

2. Dimensioned wall elevations showing openings, piers, wall classes as defined in Subsection 18.68.024.C.3(f), thicknesses, heights, wall shear test locations, and cracks or damaged portions requiring repairs. The general condition of the mortar joints shall be noted and if and where the joints require pointing. Where the exterior face is veneer, the type of veneer, its thickness and its bonding and/or ties to the structural wall masonry shall also be reported.

3. The type of interior wall and ceiling surfaces.

4. The extent and type of existing wall anchorage to floors and roof when utilized in the design.

5. The extent and type of parapet corrections which were previously performed, if any.

6. Repair details, if any, of cracked or damaged unreinforced masonry walls required to resist forces specified in this chapter.

7. All other plans, sections, and details necessary to delineate required retrofit construction including those items in Section 18.68.028. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.024 Material requirements.

A. General. All materials permitted by this chapter, including their appropriate allowable design values and those existing configurations of materials specified herein, may be utilized to meet the requirements of this chapter.

B. Existing materials. All existing materials utilized as part of the required force resisting system shall be in sound condition or shall be removed and replaced with new material.

C. Existing unreinforced masonry.

1. General. All unreinforced masonry walls utilized to carry vertical loads or seismic forces parallel and perpendicular to the wall plane shall be tested as specified in this subsection. All masonry that does not meet or exceed the minimum standards established by this chapter shall be removed and replaced by new materials or alternatively shall have its structural functions replaced by new materials and anchored to supporting elements.

2. Lay-up of walls. The facing and backing shall be bonded so that not less than ten percent (10%) of the exposed face area is composed of solid headers extending not less than four (4) inches into the backing. The clear distance between adjacent full-length headers shall not exceed twenty-four (24) inches vertically or horizontally. Where the backing consists of two (2) or more wythes, the headers shall extend not less than four (4) inches into the most distant wythe or the backing wythes shall be bonded together with separate headers whose area and spacing conform to the foregoing. Wythes of walls not bonded as described above shall be considered as veneer. Veneer wythes shall not be included in the effective thickness used in calculating the height to thickness and the shear capacity of the wall.

3. Mortar.

a. Tests. The quality of mortar in all masonry walls shall be determined by performing in-place shear tests in accordance with Standard No. 24-40. Alternative methods of testing may be approved by the Building Official.

b. Location of tests. The shear tests shall be taken at locations representative of the mortar conditions throughout the entire building, taking into account variations in workmanship at different building height levels, variations in weathering of the exterior surfaces, and variations in the condition of the interior surfaces due to deterioration caused by leaks and condensation of water and/or by the deleterious effects of other substances contained within the building. The exact test location shall be determined at the building site by the engineer in responsible charge of the structural design work. An accurate record of all such tests and their location in the building shall be recorded and these results shall be submitted to the Building and Safety Bureau for approval as part of the structural analysis.

c. Number of tests. The minimum number of tests per class shall be as follows:

i. At each of both the first and top stories, not less than two (2) tests per wall or line of wall elements providing a common line of resistance to lateral forces.

ii. At each of all other stories, not less than one (1) test per wall or line of wall elements providing a common line of resistance to lateral forces.

iii. In any case, not less than one (1) test per one thousand five hundred (1,500) square feet of wall surface nor less than a total of eight (8).

d. Minimum quality mortar.

Mortar shear test values, v_{to}, in psi shall be obtained for each in-place shear test in accordance with the following equation:

$$v_{to} = (V_{test} - P_D + _L)/A_b \quad (024\text{-}1)$$

i. Individual unreinforced masonry walls with consistently less than thirty (30) psi shall be removed or entirely repointed and retested.

ii. The mortar shear strength, v_t, is the value in psi that is exceeded by eighty percent (80%) of all of the mortar shear test values, v_{to}.

e. Collar joints. The collar joints shall be inspected at the test locations during each in-place shear test, and estimates of the percentage of the surfaces of adjacent wythes which are covered with mortar shall be reported along with the results of the in-place shear tests.

f. Unreinforced masonry classes. All existing unreinforced masonry shall be categorized into one (1) or more classes based on shear strength, quality of construction, state of repair, deterioration, and weathering. A class shall be characterized by the allowable masonry shear stress determined in accordance with Subsection 18.68.026.B. Classes shall be defined for whole walls, not for small areas of masonry within a wall.

g. Pointing. All deteriorated mortar joints in unreinforced masonry walls shall be pointed according to Standard No. 24-42. Nothing shall prevent pointing with mortar of all the masonry wall joints before the tests are made. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.025 Quality control.

A. Pointing. All preparation and mortar pointing shall be done with special inspection.

EXCEPTION: At the discretion of the Building Official, incidental pointing may be performed without special inspection.

B. Masonry shear tests. In-place masonry shear tests shall comply with Standard No. 24-40.

C. Existing wall anchors. Existing wall anchors utilized as all or part of the required tension anchors shall be tested in pullout according to Standard No. 24-41. The minimum number of anchors tested shall be four (4) per floor, with two (2) tests at walls with joists framing into the wall and two (2) tests at walls with joists parallel to the wall, but not less than ten percent (10%) of the total number of existing tension anchors at each level.

D. New bolts. One-fourth (¼) of all new shear bolts and combined tension and shear bolts in unreinforced masonry walls shall be tested according to Standard No. 24-41.

EXCEPTION: Special inspection may be provided during installation in lieu of testing. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.026 Allowable design values.

A. Allowable values.

1. Allowable values for existing materials are given in Table A-23-C and for new materials in Table A-23-D.

2. Allowable values not specified in this chapter shall be as specified elsewhere in this title.

Masonry shear. The allowable unreinforced masonry shear stress, V_a, shall be determined for each masonry class from the following equation: $v_a = 0.1v_t + 5P_D/A \quad (026\text{-}1)$

The mortar shear test value, v_t, shall be determined in accordance with Subsection 18.68.024.C.3, and not exceed one hundred (100) psi for the determination of V_a.

The one-third (1/3) increase in allowable values of the Uniform Building Code is not allowed for v_a.

B. Masonry compression. The one-third (1/3) increase in allowable stress of the Uniform Building Code is allowed.

C. Masonry tension. Unreinforced masonry shall be assumed as having no tensile capacity.

D. Existing tension anchors. The allowable resistance values of the existing anchors shall be forty percent (40%) of the average of the tension tests of existing anchors having the same wall thickness and joist orientation. The one-third (1/3) increase in allowable stress of the Uniform Building Code is not allowed for existing tension anchors.

E. Foundations. For existing foundations new total loads may be increased over existing dead load by twenty-five percent (25%). New total dead load plus live load plus seismic may be increased over existing dead load plus live load by fifty percent (50%). Higher values may be justified only in conjunction with a geotechnical investigation. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.027 Analysis and design.

A. General. Except as modified herein, the analysis and design relating to the structural alteration of existing buildings shall be in accordance with this title.

B. Selection of procedure. Buildings shall be analyzed by the general procedure of Subsection 18.68.027.C which is based on UBC Chapter 23 or, when applicable, buildings may be analyzed by the special procedure of Subsection 18.68.027.D.

C. General procedure.

1. Basis for design. The minimum design seismic forces shall be those determined in accordance with the static lateral force procedure of Subsection 18.68.027.C.1 or the dynamic lateral force procedure of Subsection 18.68.027.C.2.

Minimum design lateral forces - static force procedure. Buildings shall be analyzed to resist minimum lateral forces assumed to act nonconcurrently in the direction of each of the main axes of the structure in accordance with the following:

$V_B = \varphi ß CW$ (027-1) where

V_B = Design base shear

W = Total seismic dead load of the building

ß = Building type coefficient given in Table A-23-E

φ = Occupancy Load Factor from Table A-23-F

$C = 0.059/_T 2/3$

T = Building period, in seconds, of the structure in the direction of consideration

The product of φ ß C need not exceed 0.13. The building period may be calculated in accordance with the 1988 UBC Method A or Method B. The value of C need not exceed 0.13. The distribution of the design base shear over the height of the building is to be the same as that specified by the 1988 UBC.

2. Minimum design lateral forces—Dynamic force procedure. Dynamic analysis procedures when used to determine the seismic demand on the building shall conform with Chapter 23 of the 1988 UBC. Except where approved situs specific response spectra are developed, ground motions used in the analysis shall be consistent with the October 1988 Seismic Safety Element to the City of Long Beach general plan and applied as follows:

a. If the analysis utilizes the modal superposition spectral response approach, the five percent (5%) damped spectrum for the appropriate soil at the building site shall be used as the input ground motions. The response of the building shall be normalized by the ratio of the base shear determined from the equivalent static force approach to the base shear determined from the spectral response approach.

b. If the analysis utilizes a time history (linear elastic or nonlinear) approach, an approved synthetic acceleration time history shall be con-

structed which is consistent with the five percent (5%) damped spectrum for the appropriate soil at the building site. Such an acceleration time history must have a response spectrum which closely matches the five percent (5%) damped spectrum with no spectral ordinate dipping more than ten percent (10%) below the target spectrum.

3. Lateral forces on elements of structures. Parts or portions of structures shall be analyzed as required in UBC Chapter 23.

EXCEPTIONS:

a. Unreinforced masonry walls for which height to thickness ratios do not exceed ratios set forth in Table A-23-B need not be analyzed for out-of-plane loading. Unreinforced masonry walls which exceed the allowable h/t ratios of Table A-23-B shall be braced according to Subsection 18.68.028.E.

b. Parapets complying with Subsection 18.68.028.F need not be analyzed for out-of-plane loading.

4. Shear walls (in-plane loading). Shear walls shall comply with Subsection 18.68.027.E.

D. Special procedure.

1. Limits for the application of Subsection 18.68.027.D. The special procedure of this subsection may only be applied to buildings with the following characteristics:

a. Flexible diaphragms at all levels above the base of structure.

b. A maximum of six (6) stories above the base of the building.

c. The vertical elements of the lateral force resisting system shall consist predominately of masonry or concrete shear walls.

d. New vertical elements of the lateral force resisting system consisting of steel braced frames or special moment resisting frames shall have a maximum overall height-to-length ratio of 1.5 to 1.

e. A minimum of two (2) lines of vertical elements of the lateral force resisting system parallel to each axis of the building except for single story buildings with an open front on one (1) side only. (See Subsection 18.68.027.D.8 for open front buildings.)

2. Lateral forces on elements of structures. With the exception of the diaphragm provisions in Subsection 18.68.027.D, elements of structures shall comply with Subsection 18.68.027.C.3.

3. Crosswalls. Crosswalls shall meet the requirements of this subsection.

a. Crosswall definition. A crosswall is a wood-framed wall sheathed with any of the materials described in Tables A-23-C or A-23-D. Spacing of crosswalls shall not exceed forty (40) feet on center measured perpendicular to the direction of consideration, and shall be placed in each story of the building. Crosswalls shall extend the full story height between diaphragms.

EXCEPTIONS:

i. Crosswalls need not be provided at all levels in accordance with Subsection 18.68.027.D.4.b.iv.

ii. Existing crosswalls need not be continuous below a wood diaphragm at/or within four feet of grade provided:

aa. Shear connection requirements of Subsection 18.68.027.D.5 are satisfied at all edges of the diaphragm.

bb. Crosswalls with total shear capacity of 0.08 (W_d interconnect the diaphragm to the foundation.

cc. The demand/capacity ratio of the diaphragm between the crosswalls that are continuous to their foundations shall be calculated as:

$$DCR = [0.33W_D + V_{ca}]/2v_uD \qquad (027\text{-}2)$$

and DCR shall not exceed 2.5.

b. Crosswall shear capacity. Within any forty (40) feet measured along the span of the diaphragm, the sum of the crosswall shear capacities shall be at least thirty percent (30%) of the diaphragm shear capacity of the strongest diaphragm at or above the level under consideration.

c. Existing crosswalls. Existing crosswalls shall have a length to height ratio between openings of not less than 1.5. Existing crosswall connections to diaphragms need not be investigated as long as the crosswall extends to the framing of the diaphragm above and below.

d. New crosswalls. New crosswall connections to the diaphragm shall develop the crosswall shear capacity. New crosswalls shall have the capacity to resist an overturning moment equal to the crosswall shear capacity times the story height. Crosswall overturning moments need not be cumulative over more than two (2) stories.

e. Other crosswall systems. Other systems such as special moment resisting frames may be used as crosswalls provided that the yield story drift does not exceed one (1) inch in any story.

4. Wood diaphragms.

a. Acceptable diaphragm span. A diaphragm is acceptable if the point (L, DCR) on Figure A-23-1, falls within Regions 1, 2, or 3.

b. Demand-capacity ratios. Demand-capacity ratios shall be calculated for the diaphragm according to the following formulas:

i. For a diaphragm without qualifying crosswalls at levels immediately above or below:

$$DCR = 0.33W_d/\Sigma\, v_uD \quad (027\text{-}3)$$

ii. For a diaphragm in a single-story building with qualifying crosswalls:

$$DCR = 0.33W_d/\Sigma\, v_uD + V_{cb}) \quad (027\text{-}4)$$

iii. For diaphragms in a multi-story building with qualifying crosswalls in all levels:

$$DCR = 0.33\, W_d/\Sigma\, v_uD + V_{cb}) \quad (027\text{-}5)$$

DCR shall be calculated at each level for the set of diaphragms at and above the level under consideration.

iv. For a roof diaphragm and the diaphragm directly below if coupled by crosswalls

$$DCR = 0.33(\, W_d/\Sigma\, v_uD \quad (027\text{-}6)$$

v. Chords. An analysis for diaphragm flexure need not be made and chords need not be provided.

vi. Collectors. An analysis of diaphragm collector forces shall be made for the transfer of diaphragm edge shears into vertical elements of the lateral force resisting system. Collector forces may be resisted by new or existing elements.

vii. Diaphragm openings.

viii. Diaphragm forces at corners of openings shall be investigated and shall be developed into the diaphragm by new or existing materials.

ix. In addition to calculating demand capacity ratios per Subsection 18.68.027.D.4.b, the demand capacity ratio of the portion of the diaphragm adjacent to an opening shall be calculated using the opening dimension as the span.

x. Where an opening occurs in the end quarter of the diaphragm span, the quantity v_ud for the demand capacity ratio calculation shall be based on the net depth of the diaphragm.

5. Shear transfer. Diaphragms shall be connected to shear walls with connections capable of developing a minimum force given by the lesser of the following formulas:

$$V = 0.20C_pW_d \quad (027\text{-}7)$$

using the C_p values in Table A-23-A, or

$$V=v_uD \quad (027\text{-}8)$$

6. Shear walls (in plane loading)—Special procedure.

a. Wall story force. The wall story force distributed to a shear wall at any diaphragm level shall be the lesser value calculated as:

i. For buildings without crosswalls, $F_{wx} = 0.13(W_{wx} + W_d/2)$ (027-9) but need not exceed $F_{wx} = 0.13W_{wx} + v_uD$ (027-10)

ii. For buildings with crosswalls in all levels:

$$F_{wx} = 0.10(W_{wx} + W_d/2) \quad (027\text{-}11)$$

but need not exceed

$$F_{wx} = 0.10(W_{wx} + \Sigma\, W_d(v_uD/\Sigma\, v_uD)) \quad (027\text{-}12)$$

and need not exceed

$$F_{wx} = 0.10W_{wx} + v_uD \quad (027\text{-}13)$$

b. Wall story shear. The wall story shear shall be the sum of the wall story forces at and above the level of consideration.

$$V_{wx} = \Sigma\, F_{wx} \quad (027\text{-}14)$$

c. Shear wall analysis. Shear walls shall comply with Subsection 18.68.027.E.

d. Moment frames. Moment frames used in place of shear walls shall be designed as required in UBC Chapter 23 except that the forces shall be as specified in Subsection 18.68.027.D.6.a and the interstory drift shall be limited to 0.005 except as further limited in Subsection 18.68.027.E.3.b.

7. Out of plane forces—URM walls.

a. Allowable URM wall height to thickness ratios. The provisions of Subsection 18.68.027.C.3

are applicable except the allowable h/t ratios given in Table A-23-B shall be determined from Figure A-23-1 as follows:

i. In Region 1, h/t ratios for "buildings with crosswalls" may be used if qualifying crosswalls are present in all stories.

ii. In Region 2, h/t ratios for "buildings with crosswalls" may be used whether or not qualifying crosswalls are present.

iii. In Region 3, h/t ratios for "all other buildings" shall be used whether or not qualifying crosswalls are present.

b. Walls with diaphragms in different regions. When diaphragms above and below the wall under consideration have DCRs in different regions of Figure A-23-1, the lesser h/t ratio shall be used.

8. Buildings with open fronts. A building with an open front on one (1) side shall have crosswalls parallel to the open front and shall be designed by the following procedure:

a. Effective diaphragm span, L_i, for use in Figure No. A-23-1 shall be determined in accordance with the following formula:

$$L_i, = 2[(W_w/W_d) \cdot L + L](027\text{-}15)$$

b. Diaphragm demand/capacity ratio shall be calculated as:

$$DCR = 0.33(W_d + W_w)/[(v_u D) + V_c](027\text{-}16)$$

E. Analysis of vertical elements of the lateral force-resisting system. Applicable to both general procedure and special procedure buildings.

1. Existing URM walls.

a. Flexural rigidity. Flexural components of deflection may be neglected in determining the rigidity of a URM wall.

b. Shear walls with openings. Wall piers shall be analyzed according to the following procedure:

i. For any pier:

aa. The pier shear capacity shall be calculated as:

$$V_a = v_a Dt(027\text{-}17)$$

bb. The pier rocking shear capacity shall be calculated as:

$$V_r = 0.5P_D D/H(027\text{-}18)$$

ii. The wall piers at any level are acceptable if they comply with one of the following modes of behavior:

aa. Rocking controlled mode. When the pier rocking shear capacity is less than the pier shear capacity, i.e. $V_r < V_a$ for each pier in a level, forces in the wall at that level, $V_{wx,}$ shall be distributed to each pier, V_p, in proportion to $P_D D/H$.

For the wall at that level: $V_{wx} < V_r$ (027-19)

bb. Shear controlled mode. Where the pier shear capacity is less than the pier rocking capacity, i.e., $V_a < V_r$ in at least one pier in a level, forces in the wall at that level, $V_{wx,}$ shall be distributed to each pier, V_p, in proportion to D/H.

For each pier at that level:

$V_p < V_a$ (027-20) and

$V_p < V_{r.}$ (027-21)

If $V_p > V_a$ for each pier and $V_p > V_r$ for one or more piers, omit such piers from the analysis and repeat the procedure for the remaining piers, or strengthen and reanalyze the wall.

iii. Masonry pier tension stress. Unreinforced masonry wall piers need not be analyzed for tension stress.

c. Shear walls without openings. Shear walls without openings shall be analyzed as for walls with openings except that $V_{r,}$ shall be calculated as follows:

$$V_r = (0.50P_D + 0.25P_W)D/H(027\text{-}22)$$

2. Plywood sheathed shear walls. Plywood sheathed shear walls may be used to resist lateral loads for buildings with flexible diaphragms analyzed according to provisions of Subsection

18.68.027.C. Plywood sheathed shear walls may not be used to share lateral loads with other materials along the same line of resistance.

3. Combinations of vertical elements.

a. Lateral force distribution. Lateral forces shall be distributed among the vertical resisting elements in proportion to their relative rigidities, except that moment frames shall comply with Subsection 18.68.027.E.3.b.

b. Moment resisting frames. A moment frame shall not be used with a URM wall in a single line of resistance unless the wall has piers that are capable of sustaining rocking in accordance with Subsection 18.68.027.E.1.b and the frames are designed to carry one hundred percent (100%) of the lateral forces and the interstory drift ratio shall be limited to 0.0025. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.028 Detailed system design requirements.

A. Wall anchorage.

1. Anchor locations. All unreinforced masonry walls shall be anchored at the roof and floor levels as required in Subsections 18.68.027.C or 18.68.027.D. Ceilings with substantial rigidity and abutting masonry walls shall be connected to walls with tension bolts at a maximum anchor spacing of six (6) feet. Ceiling systems with substantial mass shall be braced at the perimeter to the roof or floor diaphragms.

2. Anchor requirements. Anchors shall be tension bolts through the wall as specified in Table No. A-23-D, or by an approved equivalent at a maximum anchor spacing of six (6) feet. All existing wall anchors shall be secured to the joists to develop the required forces.

3. Minimum wall anchorage. Anchorage of masonry walls to each floor or roof shall resist a minimum force determined by UBC Section 2312(g)2 or two hundred (200) pounds per linear foot, whichever is greater, acting normal to the wall at the level of the floor or roof. Existing wall anchors, installed under previous permits, must meet or must be upgraded to meet the requirements of this chapter.

4. Anchors at corners. At the roof and all floor levels, both shear and tension anchors shall be provided within two (2) feet horizontally from the inside of the corners of the walls.

5. Anchors with limited access. When access to the exterior face of the masonry wall is prevented by proximity of an existing building, wall anchors conforming to Item 6b in Table A-23-D may be used.

B. Diaphragm shear transfer. Shear bolt spacing shall have a maximum bolt spacing of six (6) feet.

C. Collectors. Collector elements shall be provided which are capable of transferring the seismic forces originating in other portions of the building to the element providing the resistance to those forces.

D. Ties and continuity. Ties and continuity shall conform to UBC Section 2312(h)2.E.

E. Wall bracing.

1. General. Where a wall height-thickness ratio exceeds the specified limits, the wall may be laterally supported by vertical bracing members per Subsection 18.68.028.E.2 or by reducing the wall height by bracing per Subsection 18.68.028.E.3.

2. Vertical bracing members. Vertical bracing members shall be attached to floor and roof construction for their design loads independently of required wall anchors. Horizontal spacing of vertical bracing members shall not exceed one-half (1/2) the unsupported height of the wall nor ten (10) feet. Deflection of such bracing members at design loads shall not exceed one-tenth (1/10) of the wall thickness.

3. Intermediate wall bracing. The wall height may be reduced by bracing elements connected to the floor or roof. Horizontal spacing of the bracing elements and wall anchors shall be as required by design but shall not exceed six (6) feet on center. Bracing elements shall be detailed to minimize the horizontal displacement of the wall by the vertical displacement of the floor or roof.

F. Parapets. Parapets and exterior wall appendages not conforming to this chapter shall be removed or stabilized or braced to ensure that the parapets and appendages remain in their original position.

The maximum height of an unbraced unreinforced masonry parapet above the lower of either the level of tension anchors or roof sheathing, shall not exceed one and one-half (1½) times the thickness of the parapet wall. If the required parapet height exceeds this maximum height, a bracing system designed for the force factors specified in UBC Table 23-P for walls shall support the top of the parapet. Parapet corrective work must be performed in conjunction with the installation of tension roof anchors.

The minimum height of a parapet above the wall anchor shall be twelve (12) inches.

EXCEPTION: If a reinforced concrete beam is provided at the top of the wall, the minimum height above the wall anchor may be six (6) inches.

G. Veneer.

1. Unreinforced masonry walls which carry no design loads other than their own weight may be considered as veneer if they are adequately anchored to new supporting elements.

2. Veneer shall be anchored with approved anchor ties, conforming to the required design capacity specified in this title and placed at a maximum spacing of twenty-four (24) inches with a maximum supported area of two (2) square feet.

EXCEPTION: Existing veneer anchor ties may be acceptable provided the ties are in good condition and conform to the following minimum size, maximum spacing and material requirements.

Existing veneer anchor ties shall be corrugated galvanized iron strips not less than one (1) inch in width, eight (8) inches in length and one-sixteenth (1/16) of an inch in thickness or equal and shall be located and laid in every alternate course in the vertical height of the wall at a spacing not to exceed seventeen (17) inches on centers horizontally. As an alternate, such ties may be laid in every fourth course vertically at a spacing not to exceed nine (9) inches on centers horizontally.

3. The location and condition of existing veneer anchor ties shall be verified as follows:

a. An approved testing laboratory shall verify the location and spacing of the ties and shall submit a report to the Building Official for approval as a part of the structural analysis.

b. The veneer in a selected area shall be removed to expose a representative sample of ties (not less than four) for inspection by the Building Official.

H. Truss and beam supports. Where trusses and beams other than rafters or joists are supported on masonry, independent secondary columns shall be installed to support vertical loads of the roof or floor members. The loads shall be transmitted down to adequate support.

I. Adjacent buildings.

1. Where elements of adjacent buildings do not have a separation of at least five (5) inches, the allowable height/thickness ratios for "buildings with crosswalls" per Table A-23-B shall not be used in the direction of consideration.

2. Where an exterior URM bearing wall does not have a separation of at least five (5) inches and the diaphragm levels of the adjoining structures differ by more than one and one-half (1½) times the wall thickness, supplemental vertical gravity load carrying members shall be added to support the loads normally carried by the wall and such members shall not be attached to the wall. The loads shall be transmitted down to the foundation.

J. Infill frames.

1. General. In addition to other applicable requirements of this chapter, concrete and steel frames shall comply with the special provisions of this section.

2. Infill walls. All infill walls shall be located and dimensioned on the plans and an appropriate repair defined for any observed areas of distress in the frames or infill walls including spalling, cracking or corrosion. Out of plane forces acting on the

infill shall be considered unless it is shown that the infill is tightly grouted to the frame and the h/t ratio between supports is less than sixteen (16).

3. Buildings with reinforced infill can be designed as shear wall building using the force provisions of the Table A-23-E provided that it is shown by conventional rigidity analyses that the building as retrofitted meets the regularity requirements of the 1988 UBC.

4. Buildings with reinforced infill can be designed as shear wall building using the force provisions of the Table A-23-E provided that it is shown by conventional rigidity analyses that the building as retrofitted meets the regularity requirements of the 1988 UBC.

5. Buildings with reinforced infill can be designed as shear wall building using the force provisions of the Table A-23-E provided that it is shown by conventional rigidity analyses that the building as retrofitted meets the regularity requirements of the 1988 UBC.

6. Wythes of infill walls that occur beyond the confining edges of frame columns and beams shall be anchored as veneer to the frame or the confined portion of the infill wall. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.030 Prima facie hazard grading.

A. All structures covered by this chapter and constructed before January 9, 1934, shall be inspected and graded in accordance with the provisions set forth in this chapter, such inspection to determine the relative prima facie earthquake hazard associated with same, and graded to establish a priority for subsequent correction. Such buildings which are three stories or less in height shall be inspected and graded by the Building Official and all others shall be inspected and graded in accordance with Section 18.68.050. Grading shall consist of an evaluation based upon an examination of the building plans, specifications or reports that are available, a visual inspection and consideration of the occupancy classification and occupant load. The evaluation shall include an analytical evaluation which shall determine the resistance to earthquake forces of the primary structural system of the structure. The analysis shall be based insofar as possible on the same procedures and assumptions used in seismic design of new buildings, and for purposes of evaluation, shall consist of a comparison of the seismic resistance of the existing building to the seismic resistance required of a new building designed and constructed under the building regulations of the 1970 Uniform Building Code, and otherwise identical to the existing building insofar as location, use, configuration, structural system and materials of construction are concerned. Such comparison can be expressed in terms of a capacity ratio R_S defined as follows:

$$R_S = V_{REQ}/V_{CAP}$$

Where V_{CAP} is the lateral force resistive capacity of a particular existing structure, calculated for the critical mode of failure of a significant portion of the building and V_{REQ} is the required lateral force resistive capacity of the same structure calculated for those specified earthquake conditions set forth in the building regulations of the 1970 Uniform Building Code. For the purposes of assessing the lateral force capacity of existing construction, certain stresses, values and procedures will be established as acceptable, such values to be set forth in a specification entitled "Specifications for Assessing the Capacity of Unreinforced Masonry Buildings, Long Beach Department of Community Development," to be prepared by the Building and Safety Bureau, which specifications may be amended from time to time at the discretion of the Department. Assessment of the capacity ratio R_S shall take into account the following elements:

1. Stability of the wall system and vertical framing;

2. Horizontal diaphragm and/or bracing system;

3. Connections;

4. Shear resisting elements;

5. Special hazards, either structural or nonstructural.

B. In the assignment of a building to a particular hazard grade, the Building Official shall first determine its location on a hazardous index

which shall reflect relative degrees of hazard. Such hazardous index shall be established in the specifications entitled "Specifications for Assessing the Capacity of Unreinforced Masonry Buildings, Long Beach Department of Community Development," and shall be a function of the capacity ratio R_S as defined in this section, the occupancy classification of the building and an occupancy potential which is a measure of the human exposure in and near the building. Occupancy classification and occupancy potential shall be as set forth in the above-mentioned specifications.

C. Location of a building on the Hazardous Index shall be the determining factor in the assignment of a building to a particular hazard grade. Assignment shall be by the Building Official and shall be in one of the following three hazardous grades if the capacity of the building has been determined to be less than that required under the building regulations of the 1970 Uniform Building Code:

Excessive Hazard Grade I

High Hazard Grade II

Intermediate Hazard Grade III

D. Limits on the Hazardous Index which will determine placement in particular hazard grades shall be as established in the above-mentioned specifications and shall in general limit Excessive Hazard - Grade 1 to approximately ten percent (10%) of the buildings occupying the highest hazards on the Hazardous Index; the High Hazard - Grade II to approximately thirty percent (30%) of the buildings occupying the middle portion of the Hazardous Index; and the Intermediate Hazard - Grade III to approximately sixty percent (60%) of the buildings occupying the lowest hazards on the Hazardous Index.

E. If an assessment results in a capacity virtually equal to that required under the building regulations of the 1970 Uniform Building Code, or if a repair is accomplished to affect conformance with the seismic requirements of the building regulations of the 1970 Uniform Building Code, the building shall be deemed as having no hazards and shall be so classified. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.040 Special and intermediate hazards.

In addition to evaluation of the primary structural systems, any structural or nonstructural element of the building, including parapets, ornamentation or other appendages attached to the building or any structural or nonstructural architectural, mechanical or electrical system that is determined by reason of lack of attachment, anchorage or condition, to become dangerous to persons in the building or in the vicinity, will be classed as an immediate hazard. Any immediate hazard identified in buildings classified as high or intermediate hazard shall be treated as an excessive hazard and shall be abated under the procedures established for excessive hazard. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.050 Priority and method of grading.

A. Buildings shall in general be graded on a priority system but in three (3) phases: Phase I shall consist of inspection and grading of all buildings less than four (4) stories in height and within occupancy classifications A, B, C, D and E; Phase II will consist of inspection and grading of all buildings two (2) and three (3) stories in height and classified F, G and H; and Phase III will consist of inspection and grading of all buildings remaining to be graded. Grading of all structures in each phase shall be accomplished insofar as is possible by a date established by the Department, and on that date, owners and interested parties will be promptly notified of the hazard grade in which their building has been placed. Such notification shall give notice to the owner of the hazard grade in which the building is being placed, a procedure to be followed if the owner is in disagreement with the grading, and that the grade assigned will be recorded with the county recorder after sixty (60) days unless a change in grade has been initiated as set forth in Section 18.68.190.

B. Buildings four (4) stories or more in height shall be placed in the appropriate hazard grade by the Building Official after receipt from the building owner of such information and data as is

necessary to adequately grade the building. Such information and data shall be gathered for the owner at his or her expense by a structural or civil engineer or an architect licensed under the laws of the State and shall be submitted to the Building Official by such dates as he will set consistent with those occupancy classifications established for other buildings as set forth in this section for Phases I, II and III. Notice to require gathering of such information by the owner shall be substantially in the form set forth in Section 18.68.180. The Building Official shall, after reviewing the information and data submitted, place the building in the appropriate hazard grade and shall promptly notify the owner of the hazard grade in which his or her building has been placed. Failure to provide the Building Official with the required information and data by such established dates will result in placement of the building in Excessive Hazard - Grade I, until such information is submitted and the building is graded in accordance with the provisions of this chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.060 Calculation of actual lateral force capacity V_{CAP}.

The actual lateral force capacity, V_{CAP}, of a particular structure shall be computed using those values and stresses set forth in specifications entitled "Specifications for Assessing Capacity of Unreinforced Masonry Buildings, Long Beach Department of Building and Safety." (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.070 Hazardous grading and dates of corrective action.

A. Owners of structures that have been graded Excessive Hazard - Grade I will be given notice of the need for corrective action as soon as such grading has been accomplished. Such notification shall take the form of notice of corrective action as set forth in Section 18.68.090.

B. Owners of structures that have been graded High Hazard - Grade II will be notified of the need for corrective action on January 1, 1984, or as soon thereafter as Departmental office procedures will permit. Such notification shall take the form of notice of corrective action as set forth in Section 18.68.090.

C. Owners of structures that have been graded Intermediate Hazard - Grade III will be notified of the need for corrective action on January 1, 1991, or as soon thereafter as Departmental office procedures will permit. Such notification shall take the form of Notice of Corrective Action as set forth in Section 18.68.090. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.080 Hazardous grading subject to change.

A. Buildings placed in a particular hazardous grade may be changed to a lesser grade if corrective repairs are undertaken and accomplished. Hazardous grading may also be changed when competent engineering data is submitted substantiating such a change. Such data may consist of analytical assessments, tests, data substantiating a higher capacity ratio or a modification of use or occupancy potential. Corrective repair plans and/or data substantiating a change in hazardous grading shall be prepared by a structural or civil engineer or architect licensed under the laws of the State to practice said profession. Partial repair designed to correct or strengthen individual and/or critical elements of a building will be permitted provided a suitable plan indicating the method of total and eventual correction and the schedule of expected dates of correction is submitted and the method of eventual correction is approved. Buildings so repaired will be regarded reflecting repairs so accomplished.

B. Complete repair and removal from any hazardous classification will be deemed to have been accomplished when the building has been repaired in accordance with this chapter or with the provisions for repair to remove structures from

hazardous classifications in the "Specifications for Assessing the Capacity of Unreinforced Masonry Buildings, Long Beach Department of Building and Safety." (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.090 Notice of corrective action.

After completion of grading, the Building Official shall send to owners of buildings deemed to be Excessive Hazard - Grade I, a notice of corrective action via certified United States mail. Owners of structures that have been graded High Hazard - Grade II and Intermediate Hazard - Grade III, will be sent such a notice at such time as specified in Section 18.68.070. This notice shall be in substantially the following form:

NOTICE OF CORRECTIVE ACTION

PLEASE TAKE NOTICE that an inspection and evaluation of your structure located at:

Indicates that said structure carries an (excessive, high, intermediate) hazard of major damage in the event of earthquake which would endanger the safety of persons and property located in, on or about said structure at the time of such event. Within sixty (60) days from the date of this notice you shall present to this office a plan of action for reducing the earthquake hazard associated with said structure to an acceptable level.

An extension of the aforesaid sixty (60) day period may be obtained, for good cause shown, by requesting same in writing filed with this office at least seven (7) calendar days prior to the expiration of said sixty (60) day period. Such request shall be accompanied by a written statement of your contemplated action, the accomplishments toward same up to the time of the request, an estimate of the time required to complete the formulation of your proposed plan of action, and the name and address of the engineer, or architect, if any, whom you may have engaged.

In the event your proposed plan of action contemplates repair or some action other than abandonment and demolition, within one hundred twenty (120) calendar days, you shall submit to this office proposed repairs or strengthening measures which will increase the lateral force withstanding capability of the structure to a level commensurate with the acceptable level of earthquake hazard for your prospective use or occupancy. Information as to the magnitude of the lateral force withstanding capability associated with your structure in its present condition, as well as information as to proposed repairs or strengthening measures intended to increase the lateral force withstanding capability, shall be prepared by a structural or civil engineer or architect licensed under the laws of the State of California to practice said profession.

An extension of the aforesaid one hundred twenty (120) days may be granted for good cause shown by requesting same in writing filed with this office at least seven (7) calendar days prior to the expiration of the said one hundred twenty (120) day period. Such request shall be accompanied by a written statement explaining the reason for such an extension and an estimate of the date on which plans will be completed, the degree to which plans have already been completed, and other information which will document the fact that work is progressing.

In the event abandonment and demolition is contemplated, a date certain for such abandonment and demolition shall be submitted to the Building Official for evaluation and approval.

A copy of the ordinance, by authority of which this notice is sent, may be obtained from the office of the City Clerk, upon payment of an appropriate fee. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.100 Application for order of abatement of nuisance.

A. In the event the owner of a structure is notified pursuant to Section 18.68.090 and a plan of action satisfactory to the Building Official is not presented within sixty (60) days after the notice has been mailed or within such extension of

time as may have been granted in writing by the Building Official; or if the proposed plan of action, contemplated repair, or some action other than abandonment and demolition, has not been submitted and agreed upon by the Building Official within the one hundred twenty (120) days provided in Section 18.68.090 or within such extension of time as the Building Official may have granted; then the Building Official shall apply in writing to the Board of Examiners, Appeals and Condemnation for an order declaring the structure to be a nuisance and ordering the Certificate of Occupancy to be revoked, or that it be demolished or repaired in a manner satisfactory to the Building Official, all by a date certain. The written application shall set forth in the form of factual allegations all facts which, if proven, are necessary to justify an order of condemnation, including, but not limited to the following:

1. The location and legal description of the structure;

2. A concise calculation sheet indicating the ratio R_S for each of the elements of the structural system;

3. The structure's present occupancy;

4. The date upon which the owner of the structure was notified pursuant to Section 18.68.090;

5. A statement as to whether the structure owner has submitted a plan of action pursuant to Section 18.68.090;

6. The date certain by which the structure must be repaired or demolished, in the Building Official's opinion, in order to keep the earthquake hazard associated with it at or below the applicable tolerable level.

B. A copy of the written application shall be mailed by certified United States mail to the person to whom the notice of Section 18.68.090 was mailed. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.110 Hearing by Board.

In the event the Building Official files an application pursuant to Section 18.68.100, he shall set a date and time for a hearing before the Board of Examiners, Appeals and Condemnation in accordance with Section 18.20.130. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.120 Appeals to City Council.

Whenever the owner of any structure is aggrieved by any final order of the Board of Examiners, Appeals and Condemnation, dealing with the abatement of a nuisance as provided in this chapter, such owner may within five (5) days of notice of such ruling or act appeal to the City Council as provided in Section 18.20.140. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.130 Owner responsibility to demolish structure.

In the event the Board of Examiners, Appeals and Condemnation orders a structure demolished, immediately upon the effective date of its order, the structure's owner shall arrange for the vacation and demolition of the structure within sixty (60) days after the Board's order becomes effective, unless such order is modified or reversed by the City Council or is stayed by a court of competent jurisdiction. Should the structure owner fail to inform the Building Official within five (5) days after the Board's order becomes effective that such arrangements have been made or should the owner's scheduled demolition not in fact be completed within the aforesaid sixty (60) day period, then the Building Official may arrange for the demolition of the subject structure and impose a lien upon the property for the costs of same. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.135 Landmark structures—Alternatives to demolition.

Upon receipt of an application for a permit to demolish a landmark building to comply with the

provisions of this chapter, the Building Official shall request the City Clerk to present such application before the City Council at their next scheduled meeting. City Council shall thereupon set a public hearing not less than ten (10) nor more than thirty (30) days from the date the application is presented. On the date thus fixed, or on the date to which the hearing has been subsequently continued, City Council shall proceed to hear testimony and receive evidence relating to the matter. At the conclusion of the hearing, City Council shall make a determination on the method of abating the earthquake hazardous conditions of the building based upon the estimated comparative costs of seismic rehabilitation and demolition, any financial assistance programs that may be available to the owner for rehabilitation, the potential life safety risks involved, or any other pertinent information. Following the hearing, the City Council may order demolition. Alternatively, the City Council may consider: (1) ordering the building vacated and secured against unlawful entry, (2) barricading the pedestrian areas surrounding the building subject to hazards from parts of the building dislodged in an earthquake, and/or (3) allowing additional time to strengthen the building. In the event authorization is not granted for a permit to demolish and/or an alternative is ordered, all demolition permit processing fees submitted by the applicant shall be refunded and the applicant shall be deemed relieved of any further responsibility to demolish the structure under this chapter except as may be provided in the alternate permit issued. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.140 Notice of pending order of demolition.

A. In the event the Board orders the demolition of the subject structure by a date certain which is three (3) months or more after the effective date of the order, and the order is not modified or reversed by the City Council or is not stayed by a court of competent jurisdiction, the Building Official shall prepare a notice of pending order of demolition and arrange for the recordation of same in the office of the county recorder of Los Angeles County. The notice shall be in substantially the following form:

NOTICE OF PENDING
ORDER OF DEMOLITION

TO WHOM IT MAY CONCERN:

NOTICE IS HEREBY GIVEN that by order of the Board of Examiners, Appeals and Condemnation of the City of Long Beach, State of California, dated _____, 20____, that certain structure now standing at and described generally as must and shall be demolished on or before _____ 20____.

A certified copy of said order may be obtained from the office of the Department of Community Development, Building and Safety Bureau, of the City of Long Beach upon the payment of the appropriate fee. If said structure is not demolished in accordance with the aforesaid order, the same may be demolished by the City of Long Beach and the costs therefore assessed as a lien upon the land upon which the structure stood. A lien in the amount of $_____ in favor of the City of Long Beach is hereby assessed against said property for the costs of recording this notice.

B. The notice shall be recorded under the names of each and every person to whom the notice of Section 18.68.090 was mailed. The structure's owner may pay the recording fees for the aforesaid notice and thereby avoid the imposition of lien for same against the property. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.150 Owner responsibility to accomplish hazard reduction measures.

In the event the Board or the City Council certifies to the validity of any or all of any measures the owner has proposed as a means of reducing the earthquake hazard, and finds that the accomplishment of such measures will reduce the earthquake hazard associated with the structure

to or below the applicable tolerable level, it shall order the owner to immediately initiate the accomplishment of such measures and to complete the same within a reasonable time. The Board or the City Council shall designate in its order, based on evidence presented to it during the hearing, that date certain which represents a reasonable time in its opinion for the accomplishment of the proposed measures. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.160 Jurisdiction of Board or Council over certain cases.

The Board or the City Council shall retain jurisdiction over cases in which it has approved owner-proposed measures for reducing earthquake hazard until such measures have been timely accomplished. In the event written evidence of the completion of the approved measures is not presented to the Board or the City Council within ten (10) days after the designated date for the completion of such measures shall have passed, the Board or the City Council may revise its decision and order the immediate vacation and demolition of the structure. The Board or City Council may consider a time extension for the completion of the proposed measures if, prior to said date, the structure's owner has so applied. Any application for such an extension shall be in writing, setting forth what has actually been accomplished, what remains to be done, and the reasons for the requested extension. Should the Board or the City Council conclude that good cause has been shown for an extension, it may grant such an extension in writing for a period deemed necessary to complete the approved repairs. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.170 Hearing—Failure of owner to proceed in good faith.

In the event the Building Official or any interested person presents written affidavits to the Board or the City Council indicating the owner is not proceeding in good faith to timely accomplish any measures approved by the Board or the City Council in its original decision and order, the Board or City Council shall, on ten (10) days' written notice mailed via certified United States mail to the owner of the structure, schedule and conduct a hearing on the matter. At such hearing, evidence, oral and written, may be presented as in the original hearing, and if the Board or the City Council is convinced that the owner is not proceeding in good faith to timely carry out its original order, then it shall revoke the order and order instead the immediate vacation and demolition of the structure. Written affidavits shall not, however, be received by the Board or the City Council under this section until at least fifty percent (50%) of the time allowed in its original order has expired. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.180 Notification to owners of buildings four stories or more in height.

Pursuant to Section 18.68.050, notification shall be sent via certified United States mail to owners of buildings four (4) stories or more in height, on such dates as are determined in Section 18.68.050. Such notification shall require the owner to have gathered and submitted to the Building Official information and data relating to the building's capabilities to withstand earthquake forces in sufficient detail to permit grading of the building in accordance with Section 18.68.030. Such information and data shall be gathered by a structural or civil engineer or architect licensed under the laws of the State. The notification shall state the date by which the information and data shall be transmitted to the Building Official, and that failure to so transmit shall result in arbitrarily placing the building in the Excessive Hazard - Grade I category. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.190 Notice of county recorder.

Upon expiration of the sixty (60) day period after notification to owners and interested parties of the hazardous grade in which their building is being placed, all in accordance with Section 18.68.050, and if such hazardous grading has not been changed or required data substantiating a change has not been submitted as set forth in Section 18.68.080, the Building Official shall prepare and cause to be recorded with the county recorder a certificate stating that the building has been graded and assigned the particular hazardous grade determined under Section 18.68.030. When and if all required repairs are made to the building and it is removed from the hazardous grading, or certain corrective action is taken to change it to a different grade, the Building Official shall cause to be recorded with the county recorder records indicating the removal from said hazardous grading or reflecting the change to the different grade. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.200 Figure No. A-23-1.

Acceptable diaphragm span is shown in Figure A-23-1. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.210 Tables A-23-A through A-23-F.

Force factors and material values are shown in Tables A-23-A through A-23-F. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.220 Standard No. 24-40, in-place masonry shear tests.

The bed joints of the outer wythe of the masonry shall be tested in shear by laterally displacing a single brick relative to the adjacent bricks in the same wythe. The head joint opposite the loaded end of the test brick shall be carefully excavated and cleared. The brick adjacent to the loaded end of the test brick shall be carefully removed by sawing or drilling and excavating to provide space for a hydraulic ram and steel loading blocks. Steel blocks, the size of the end of the brick, shall be used on each end of the ram to distribute the load to the brick. The blocks shall not contact the mortar joints. The load shall be applied horizontally, in the plane of the wythe, until either a crack can be seen or slip occurs. The strength of the mortar shall be calculated by dividing the load at the first crack or movement of the test brick by the nominal gross area of the sum of the two (2) bed joints. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.221 Standard No. 24-41, tests of anchors in unreinforced masonry walls.

A. Existing Anchors. The test apparatus shall be supported on the masonry wall at a minimum distance of the wall thickness from the anchor tested. Existing wall anchors shall be given a preload of three hundred (300) pounds prior to establishing a datum for recording elongation. The tension test load reported shall be recorded at one-eighth (1/8) inch relative movement of the anchor and the adjacent masonry surface. Results of all tests shall be reported. The report shall include the test results as related to the wall thickness and joist orientation.

FIGURE NO. A-23-1.

ACCEPTABLE DIAPHRAGM SPAN

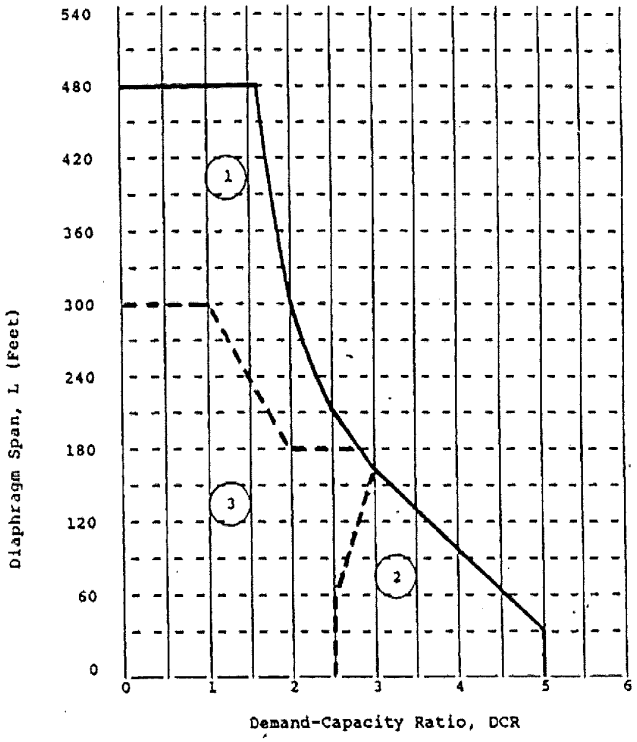


TABLE NO. A-23-A
HORIZONTAL FORCE FACTOR C_p

CONFIGURATION OF MATERIALS	C_p
Roofs with straight or diagonal sheathing and roofing applied directly to the sheathing, or floors with straight tongue and groove sheathing.	0.5
Diagrams with double or multiple layers of Boards with edges offset and blocked plywood systems.	0.74

TABLE NO. A-23-B
ALLOWABLE VALUE OF HEIGHT-THICKNESS RATIO OF UNREINFORCED MASONRY WALLS

Wall Types	Buildings with Crosswalls[1]	All Other Buildings
Walls of one-story buildings	16[2,3]	13
First-story wall of multi-story building	16	15
Walls in top story of multi-story buildings	14[2,3]	9
All other walls	16	13

[1] Applies to the Special Procedures of Subsection 18.68.027.D only. See Subsection 18.68.027.D.7 for other restrictions.

[2] This value of height-to-thickness ratio may be used only where mortar shear tests in accordance with Section 18.68.024 establish a tested mortar shear strength, v_t, of not less than one hundred (100) psi or where the tested mortar shear strength, v_t, is not less than sixty (60) psi and a visual examination of the collar joint indicates not less than fifty percent (50%) mortar coverage.

[3] Where a visual examination of the collar joint indicates not less than fifty percent (50%) mortar coverage and the tested mortar shear strength, v_t, when established in accordance with Section 18.68.024 is greater than thirty (30) psi but less than sixty (60) psi, the allowable height-to-thickness ratio may be determined by linear interpolation between the larger and smaller ratios in direct proportion to the tested mortar shear strength, v_t.

TABLE NO. A-23-C
ALLOWABLE VALUES FOR EXISTING MATERIALS

EXISTING MATERIALS OR CONFIGURATIONS OF MATERIALS[1]	ALLOWABLE VALUES
1. HORIZONTAL DIAPHRAGMS[4]	
a. Roofs with straight sheathing and roofing applied directly to the sheathing.	100 lbs. per foot for seismic shear
b. Roofs with diagonal sheathing and roofing applied directly to the sheathing.	250 lbs. per foot for seismic shear
c. Floors with straight tongue-and-groove sheathing.	100 lbs. per foot for seismic shear
d. Floors with straight sheathing and finished wood flooring with Board edges offset or perpendicular	500 lbs. per foot for seismic shear
e. Floors with diagonal sheathing and finished wood flooring.	600 lbs. per foot for seismic shear
2. CROSSWALLS[2,4]	
a. Plaster on wood or metal lath	Per side: 200 lbs. per foot for seismic shear
b. Plaster on gypsum lath	175 lbs. per foot for seismic shear
c. Gypsum wall Board, unblocked edges	75 lbs. per foot for seismic shear
d. Gypsum wall Board, blocked edges	125 lbs. per foot for seismic shear
3. EXISTING FOOTINGS, WOOD FRAMING, STRUCTURAL STEEL, AND REINFORCED CONCRETE	
a. Plain concrete footings	F'c = 1500 psi unless otherwise shown by tests[3]
b. Douglas fir wood	Allowable stress same as No. 1 D.F.[3]
c. Reinforcing steel	f_t = 18,000 lbs. per square inch maximum.[3]
d. Structural steel	f_t = 20,000 lbs. per square inch maximum.[3]

[1] Bolts to be tested as specified in Section 18.68.025.

[2] Bolts to be (-inch minimum in diameter.

[3] Drilling for bolts and dowels shall be done with an electric rotary drill. Impact tools shall not be used for drilling holes or tightening anchors and shear bolt nuts.

[4] A one-third increase in allowable stress is not allowed.

[5] Stresses given may be increased for combinations of loads as specified in the Uniform Building Code.

TABLE A-23-E
β Factors

SYSTEM	β
A. URM Bearing Wall Building	1.0
B. Ordinary Steel Moment Frame	
1. Without infill (after removal of infill)	.065(1)
2. Clay tile infill	(3)
3. Unreinforced masonry or concrete infill	0.65(2)
4. Reinforced masonry or concrete infill	0.80(2)
C. Ordinary Concrete Moment Frame	
1. Without infill (after removal of infill)	0.65(1)
2. Clay tile infill	(3)
3. Unreinforced masonry or concrete infill	0.65(2)

SYSTEM	β
4. Reinforced masonry or concrete infill	0.80(2)

Notes:

The shear capacity of frame columns adjacent to (1) infill walls shall be capable of resisting story shears using (= 1.0.

Where partial infills are used to resist the story (2) shear, the shear capacity of frame columns adjacent to partial infill walls shall be capable of resisting story shears using (= 1.0.

Clay tile infill may not be considered for resisting (3) building lateral forces. Hence, if the infill is clay tile, either it needs to be removed and replaced with reinforced concrete or masonry (and a (of 0.80 utilized) or the infill can remain in place (provided it is protected from becoming a falling hazard) and the frame is qualified with a (of 0.65.

TABLE A-23-F
φOCCUPANCY LOAD FACTOR

OCCUPANT LOAD*	φ
100 or more	1.25
Less than 100	1.0

Notes:

The Occupant Load shall be defined as specified in the * 1985 UBC Section 3302(a).

B. Combined shear and tension bolts. Combined shear and tension bolts embedded in unreinforced masonry walls shall be tested using a torque calibrated wrench to the following minimum torques:

1/2-inch-diameter bolts — 40 foot lbs.

5/8-inch-diameter bolts — 50 foot lbs.

3/4-inch-diameter bolts — 60 foot lbs.

All nuts shall be installed over malleable iron or plate washers when bearing on wood and heavy cut washers when bearing on steel. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.68.222 Standard No. 24-42, pointing of unreinforced masonry walls.

The old or deteriorated mortar should be cut out, by means of a toothing chisel or nonimpact power tool to a uniform depth of three-fourths-inch, or until sound mortar is reached. Care must be taken not to damage the brick edges. After cutting is completed, remove all loose material with a brush, air, or water stream.

Mortar mix shall be type "N" or "S" proportions as called for in the construction specifications, preferably as close to the original mortar proportion as possible. Prehydrate pointing mortar to reduce excessive shrinkage. To prehydrate mortar, thoroughly mix all ingredients dry, then mix again, adding only enough water to produce a damp unworkable mix which will retain its form when pressed into a ball. After keeping mortar in this dampened condition for one (1) to one and one-half (1½) hours, add sufficient water to bring it to the proper consistency that is somewhat drier than conventional masonry mortar. To ensure good bond, wet the mortar joints thoroughly before applying pointing mortar. The joints should not be visibly wet with free-standing water which must be absorbed into the wall. Pack mortar tightly in thin layers (one-fourth inch maximum) until the joint is filled, then tool to a smooth surface to match original profile. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.69 VOLUNTARY EARTHQUAKE HAZARD REDUCTION IN EXISTING WOOD FRAME RESIDENTIAL BUILDINGS WITH WEAK CRIPPLE WALLS AND UNBOLTED SILL PLATES

18.69.010 General.

A. Purpose. The provisions of this chapter are intended to promote public safety and welfare

by reducing the risk of earthquake-induced damage to existing wood-framed residential buildings. The voluntary minimum standards contained in this chapter shall substantially improve the seismic performance of these residential buildings but will not necessarily prevent all earthquake damage. When fully followed, these standards will strengthen the portion of the structure that is most vulnerable to earthquake damage.

Prior to 1960, most wood frame residential buildings were built with raised wood floors supported by short wood stud walls known as cripple walls. These cripple walls are typically braced with weak seismic materials such as Portland cement plaster or horizontal wood siding. In addition, wood frame buildings built under Building Codes in effect prior to July 1938 were not required to be bolted to their foundations. Recent earthquakes have shown that if a building has weak cripple walls or is unbolted, it may fall off its foundation even in moderate earthquakes.

Fallen buildings have collapsed, caught fire or needed extensive repairs to restore their occupancy.

This chapter sets prescriptive standards for strengthening of under floor enclosures, if permitted by the Building Official, without requiring construction documents prepared by a registered design professional licensed by the State of California. This chapter also provides a design standard for the use of alternate materials or an alternate method of construction in lieu of the prescriptive standards.

Construction documents for strengthening using alternate materials or methods shall be prepared by a registered design professional licensed by the State of California.

B. Scope. The provisions of this chapter may be applied to light wood frame Group R occupancies, with no more than four (4) dwelling units when they contain one (1) or more of the structural weaknesses specified in Section 18.69.030.

The provisions of this chapter do not apply to the buildings or elements thereof listed below. These buildings or elements require analysis by a registered design professional licensed by the State of California in accordance with Chapter 16 of the California Building Code adopted in Chapter 18.40 or other approved standards to determine appropriate strengthening.

1. Buildings with a lateral-force-resisting system using poles or columns embedded in the ground.

2. Cripple walls that exceed four (4) feet in height.

3. Buildings exceeding three (3) stories in height and any three (3) story building with cripple wall studs exceeding fourteen (14) inches in height.

4. Buildings, or portions thereof, constructed on a concrete slab on grade or constructed on or into a slope steeper than one (1) unit vertical in three (3) units horizontal (33.3% slope).

5. Buildings where the Building Official determines that conditions exist that are beyond the scope of the requirements of this chapter.

The standard details approved by the Building Official and these prescriptive provisions are not intended to be the only acceptable strengthening methods permitted. Alternate details and methods shall be permitted when approved by the Building Official. Qualified historical buildings shall be permitted to use alternate building regulations or deviations from this chapter in order to preserve their original or restored architectural elements and features. See California Code of Regulations, Title 24, Part 8 (California Historical Building Code) for these standards.

C. Alternative design procedures. When analysis by a registered design professional is required or provided for a building within the scope of this chapter, such analysis shall be in accordance with all requirements of this code except as provided in this chapter. The design shall provide strengthening for any structural weakness listed in Section 18.69.030 that is at least equivalent to that provided by the prescriptive requirements of this chapter with respect to strength, deflection and capacity. The Building Official may require that sufficient evidence be submitted to substantiate such equivalence. The base shear may be determined in accordance with the following:

$V = 0.1375\ W$ (69-1)

Where:

V = the total design lateral force or shear at the base

W = the total seismic dead load defined in Section 12.7.2 of ASCE 7-16. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.69.020 Definitions.

For the purpose of this chapter, in addition to the applicable definitions, symbols and notations in this code, certain additional terms are defined as follows:

"Adhesive anchor" means a fastener placed in hardened concrete or masonry that derives its holding strength from a chemical adhesive compound placed between the wall of the hole and the embedded portion of the anchor.

"Anchor side plate" means a metal plate or plates used to connect a sill plate to the side of a concrete or masonry stem wall.

"Cripple wall" means a wood-framed stud wall extending from the top of the foundation to the underside of the lowest floor framing.

"Expansion anchor" means a mechanical fastener placed in hardened concrete or assembled masonry, designed to expand in a self-drilled or pre-drilled hole of a specified size and engage the sides of the hole in one or more locations to develop shear and/or tension resistance to applied loads without grout, adhesive or drypack.

"Perimeter foundation" means a foundation system which is located under the exterior walls of a building.

"Snug-tight" is as tight as an individual can torque a nut on a bolt by hand using a wrench with a ten (10) inch long handle and the point at which the full surface of the plate washer is contacting the wood member and slightly indents the wood surface.

"Unreinforced masonry" means and includes adobe, burned clay, concrete or sand-lime brick, hollow clay or concrete block, hollow clay tile, rubble, cut stone, and unburned clay masonry walls in which the area of reinforcement is less than fifty percent (50%) of the minimum steel ratios required for reinforced masonry. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.69.030 Structural weaknesses.

A. Sill plates or floor framing which are supported directly on the ground without an approved foundation system.

B. A perimeter foundation system which is constructed of wood posts supported on isolated pad footings.

C. Perimeter foundation systems that are not continuous.

EXCEPTIONS:

1. Existing single-story exterior walls not exceeding ten (10) feet in length forming an extension of floor area beyond the line of an existing continuous perimeter foundation.

2. Porches, storage rooms and similar spaces not containing fuel burning appliances.

D. A perimeter foundation system which is constructed of unreinforced masonry.

E. Sill plates which are not connected to the foundation or are connected with less than what is required by Subsection 18.69.040.C.1.

F. Cripple walls that are not braced in accordance with the requirements of Subsection 18.69.040.D and Table 69-A. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.69.040 Strengthening requirements.

A. General.

1. Scope. The structural weaknesses noted in Section 18.69.030 shall be strengthened in accordance with the requirements of this section. Strengthening work shall be allowed to include both new construction and alteration of existing construction. Except as provided herein, all strengthening work and materials shall comply with the applicable provisions of this code. Alternate methods of strengthening shall be allowed

provided such systems are designed by a registered design professional and approved by the Building Official.

2. Condition of existing wood materials. All existing wood materials which will be a part of the strengthening work shall be in a sound condition and free from defects which substantially reduce the capacity of the member. Any wood material found to contain fungus infection shall be removed and replaced with new material. Any wood material found to be infested with insects or to have been infested shall be strengthened or replaced with new materials to provide a net dimension of sound wood at least equal to its undamaged original dimension.

3. Floor joists not parallel to foundations. Floor joists framed perpendicular or at an angle to perimeter foundations shall be restrained by either a nominal two-inch wide continuous rim joist or a nominal two (2) inch wide full depth blocking between alternate joists in one- and two-story buildings, and between each joist in three (3) story buildings. Blocking for multistory buildings must occur at each joist space above a braced cripple wall panel.

Existing connections at the top edge of an existing rim joist or blocking need not be verified. The bottom edge connection to either the foundation sill plate or top plate of a cripple wall shall be verified unless a supplemental connection is provided. The minimum existing bottom edge connection shall consist of 8d toenails spaced six (6) inches apart for a continuous rim joist or three (3) 8d toenails per block. When this minimum bottom edge connection is not present, or is not verified, a supplemental connection shall be provided.

When an existing continuous rim joist or the minimum existing blocking does not occur, new one and one-eighth (1-1/8) inch wood structural panel blocking installed tightly between floor joists and nailed with 10d common nails at four (4) inches on center to the sill or wall top plate shall be provided at the inside face of the cripple wall. In lieu of one and one-eighth (1-1/8) inch wood structural panel blocking, tight-fitting, full or near full depth two (2) inches nominal width lumber blocking shall be allowed provided it does not split during installation. New blocking is not required where it will interfere with vents or plumbing that penetrates the wall.

4. Floor joists parallel to foundations. Where existing floor joists are parallel to the perimeter foundations, the end joist shall be located over the foundation and, except for required ventilation openings, shall be continuous and in continuous contact with any existing foundation sill plate or top plate of the cripple wall. Existing connections at the top edge connection of the end joist need not be verified; however, the bottom edge connection to either the foundation sill plate or the top plate of a cripple wall shall be verified unless a supplemental connection is provided.

The minimum bottom edge connection shall be 8d toenails spaced six (6) inches apart. If this minimum bottom edge connection is not present or is not verified, a supplemental connection shall be provided.

5. Supplemental connections. Supplemental connections shall provide sufficient strength to transfer the seismic forces. Framing anchors of minimum eighteen (18) gage steel and twelve (12) approved fasteners may be considered to meet this requirement when spaced thirty-two (32) inches on center for one (1) story buildings, twenty-four (24) inches on center for two (2) story buildings and sixteen (16) inches on center for three (3) story buildings.

EXCEPTIONS: A supplemental connection is not required when:

a. The structural wood panel sheathing extends from the sill plate to the rim joist or blocking above.

b. The floor sheathing is nailed directly into the sill or top plate of the cripple wall.

6. Single top plate ties. When a single top plate exists in the cripple wall, all end joints in the top plate shall be tied. Ties shall be connected to each end of the discontinuous top plate and shall be equal to one of the following:

a. Three (3) inch by six (6) inch by 0.036-inch thick galvanized steel and nailed with six (6) 8d nails at each end.

b. One and one-half (1½) inch by twelve (12) inch by 0.058-inch galvanized steel nailed with six (6) 16d nails at each end.

c. Two (2) inch by four (4) inch by twelve (12) inch wood blocking nailed with six (6) 16d nails at each end.

B. Foundations.

1. New perimeter foundations. New perimeter foundations shall be provided for structures with the structural weaknesses noted in Subsections 18.69.030.A and 18.69.030.B. Soil investigations or geotechnical studies are not required for this work unless the building shows signs of excessive settlement or creep.

2. Foundation evaluation by a registered design professional. Partial perimeter foundations or unreinforced masonry foundations shall be evaluated by a registered design professional for the force levels noted in Formula (69-1) of this chapter. Test reports or other substantiating data to determine existing foundation material strengths shall be submitted for review. When approved by the Building Official, these foundation systems may be strengthened in accordance with the recommendations included with the evaluation in lieu of being replaced.

EXCEPTION: In lieu of testing existing foundations to determine material strengths and when approved by the Building Official, a new nonperimeter foundation system, designed for the forces noted in Formula (69-1) of this chapter, may be used to resist all exterior wall lateral forces.

3. Details for new perimeter foundations. All new perimeter foundations shall be continuous and constructed according to the standards for new buildings.

EXCEPTIONS:

a. When approved by the Building Official, the existing clearance between existing floor joists or girders and existing grade below the floor need not comply with Section 2304.12.1.1 of the California Building Code adopted in Chapter 18.40. This exception shall not be permitted when buildings are relocated on new foundations.

b. When approved by the Building Official, and when designed by a registered design professional, partial perimeter foundations may be used in lieu of a continuous perimeter foundation.

C. Foundation sill plate anchorage.

1. Existing perimeter foundations. When the building has an existing continuous perimeter foundation, all perimeter wall sill plates shall be connected to the foundation in accordance with Table 69-A and this section. Anchors shall be installed with the plate washer installed between the nut and the sill plate. The nut shall be tightened to a snug-tight condition after curing is complete for adhesive anchors and after expansion wedge engagement for expansion anchors.

The installation of nuts on all anchors shall be subject to verification by the Building Official. Torque testing shall be performed for twenty percent (20%) of all adhesive or expansion anchors.

Minimum test values shall be thirty (30) foot-pounds for one-half inch (1/2") and forty (40) foot-pounds for five-eighths inch (5/8") diameter anchors.

Anchor side plates shall be permitted when conditions prevent anchor installation vertically through the sill plate. Anchor side plates shall be spaced as required for adhesive or expansion anchors but only one anchor side plate is required on individual pieces of sill plate less than thirty-two inches (32") in length. Wood structural panel shims shall be used on sill plates for single plate anchor side plates when the foundation stem wall is from three-sixteenths inch (3/16") to three-fourths inch (3/4") wider than the sill plate. The shim length shall extend a minimum of two inches (2") past each end of the anchor side plate. Two (2) plate anchor side plates shall be used when the total thickness of the required shim exceeds three-fourths inch (3/4").

All anchor side plates which use lag or wood screws shall pre-drill the sill plate to prevent splitting as required by Section 12.1 of the 2024 ANSI/AWC NDS.

Lag or wood screws shall be installed in the center of the thickness of the existing sill plate.

Expansion anchors shall not be used in unreinforced masonry or concrete masonry grout of poor quality. Adhesive anchors shall be required when expansion anchors will not tighten to the required torque or their installation causes surface cracking of the foundation wall.

2. Placement of anchors. Anchors shall be placed within twelve inches (12"), but not less than nine inches (9"), from the ends of sill plates and shall be placed near the center of the stud space closest to the required spacing. New sill plates may be installed in pieces when necessary because of existing conditions.

The minimum length of new sill plate pieces shall be thirty inches (30").

EXCEPTION: Where physical obstructions such as fireplaces, plumbing or heating ducts interfere with the placement of an anchor, the anchor shall be placed as close to the obstruction as possible, but not less than nine inches (9") from the end of the plate. Center-to-center spacing of the anchors shall be reduced as necessary to provide the minimum total number of anchors required based on the full length of the wall. Center-to-center spacing shall not be less than twelve inches (12").

3. New perimeter foundations. Sill plates for new perimeter foundations shall be anchored as required by Section 2308.3.1 of the California Building Code adopted in Chapter 18.40.

D. Cripple wall bracing.

1. General. Exterior cripple walls not exceeding four feet (4') in height shall use the prescriptive bracing method listed below. Cripple walls more than four feet (4') in height require analysis by a registered design professional in accordance with Chapter 16 of the California Building Code adopted in Chapter 18.40.

2. Sheathing requirements. Wood structural panel sheathing shall not be less than 15/32 inch thick. When used, plywood panels shall be constructed of five (5) or more plies.

All wood structural panels shall be nailed with 8d common nails spaced four inches (4") on center at all edges and at twelve inches (12") on center at each intermediate support with not less than two (2) nails for each stud. Nails shall be driven so that their head or crown is flush with the surface of the sheathing and shall penetrate the supporting member a minimum of one and one-half inch (1-½"). When a nail fractures the surface, it shall be left in place and not counted as part of the required nailing. A new 8d nail shall be located within two inches (2") of the discounted nail and hand-driven flush with the sheathing surface.

EXCEPTION: No. 6 × 1-½ inch wood screws may be used for sheathing nailing when bracing materials are installed on the interior face of studs and cement plaster or other brittle finishes are on the exterior of the sheathed wall.

All horizontal joints must occur over nominal two inch (2") by four inch (4") blocking installed with the nominal four inch (4") dimension against the face of the plywood. All vertical joints must occur over studs. Vertical joints at adjoining pieces of wood structural panels shall be centered on existing studs such that there is a minimum one-eighth inch (⅛") between the panels.

Nails shall be placed a minimum of one-half inch (½") from the edges of the existing stud. When such edge distance cannot be maintained because of the width of the existing stud, a new stud shall be added adjacent to the existing and connected with 16d common nails at eight inches (8") on center. A minimum of three (3) such nails shall be provided.

3. Distribution and amount of bracing. See Table 69-A for the distribution and amount of bracing required. Bracing for a building with three (3) or more floor levels above cripple wall studs exceeding fourteen inches (14") in height must be designed in accordance with Chapter 16 of the California Building Code adopted in Chapter 18.40.

The braced panel must be at least two (2) times the height of the cripple stud wall but not less than forty-eight inches (48") in width. All panels along a wall shall be nearly equal in length and shall be nearly equally spaced along the length of the wall. Braced panels at ends of walls shall be located as near the end as possible.

Where physical obstructions such as fireplaces, plumbing or heating ducts interfere with the placement of cripple wall bracing, the bracing shall then be placed as close to the obstruction as possible. The total amount of bracing required shall not be reduced because of obstructions, but the required length of bracing need not exceed the length of the wall.

Under floor ventilation openings shall be maintained in accordance with Section 1202.4 of the California Building Code adopted in Chapter 18.40. Braced panels may include under floor ventilation openings when the height of the solid portion of the panel meets or seventy-five percent (75%) of the height of the cripple stud wall.

When the minimum amount of bracing prescribed in Table 69-A cannot be installed due to obstructions along any wall, the bracing must be designed by a registered design professional in accordance with Subsection 18.69.010.C.

4. Stud space ventilation. When bracing materials are installed on the interior face of studs forming an enclosed space between the new bracing and existing exterior finish, each braced stud space must be ventilated. Adequate ventilation and access for future inspection shall be provided by drilling on two inch (2") to three inch (3") diameter round hole through the sheathing nearly centered between each stud at the top and bottom of the cripple wall. Such holes should be spaced a minimum of one (1) inch clear from the sill or top plates. In stud spaces containing sill bolts, the hole shall be located on the center line of the sill bolt but not closer than one inch (1") clear from the nailing edge of the sheathing.

When existing blocking occurs within the stud space, additional ventilation holes shall be placed above and below the blocking or the existing block shall be removed and a new nominal two inch (2") by four inch (4") block installed with the nominal four inch (4") dimension against the face of the plywood. For stud heights less than eighteen inches (18"), only one (1) ventilation hole need be provided.

5. Existing under floor ventilation. Existing under floor ventilation shall not be reduced without providing equivalent new ventilation as close to the existing as possible. New sheathing may be installed around existing vent openings in braced panels when the length of the panel is increased a distance equal to the length of the vent opening or one stud space minimum.

EXCEPTION: For residential buildings with a post and pier foundation system where a new continuous perimeter foundation system is being installed, ventilation shall be provided in accordance with this title. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.69.050 Quality control.

A. Inspection by the Department. All work shall be subject to inspection by the Building Official including, but not limited to:

1. Placement and installation of new adhesive or expansion anchors or anchor side plates installed in existing foundations;

2. Placement of required blocking and framing anchors;

3. Installation and nailing of new cripple wall bracing. The torque testing of sill plate anchors per Subsection 18.69.040.C.1 shall be performed by the Building Inspector.

B. Special inspection. Special inspection is not required for sill plate anchors installed in existing foundations regulated by the provisions of this chapter. Any work may be subject to special inspection when required by the Building Official or when so designated by the registered design professional of record.

C. Structural observation. Structural observation is not required for work done under the prescriptive provisions of this chapter. When construction documents for strengthening are prepared by a registered design professional and alternate materials or methods are used, structural observation shall be provided as required in Section 1704.6 of the California Building Code adopted in Chapter 18.40.

D. Registered design professional of record's statement. When an alternative design is provided

per Subsection 18.69.010.C, the responsible registered design professional of record shall place the following statement on the approved construction document:

1. "I am responsible for this building's seismic strengthening design for the under floor cripple walls and sill bolting in compliance with the minimum seismic resistance standards of Chapter 18.69 of the Long Beach Municipal Code."

or when applicable:

2. "The registered special inspector, required as a condition of the use of structural design stresses requiring continuous inspection, will be responsible to me."

TABLE 69-A SILL PLATE ANCHORAGE AND CRIPPLE WALL BRACING[1,2,3]

Number of Stories Above Cripple Walls	Minimum Sill Plate Connection and Maximum Spacing	Amount of Wall Bracing
One Story	Adhesive or expansion anchors shall be ½ inch minimum diameter spaced at 6 feet maximum center to center.	Each end and not less than 50% of the wall length.
Two Story	Adhesive or expansion anchors shall be ½ inch minimum diameter spaced at 4 feet maximum center to center; or ⅝ inch spaced at 6 feet maximum center to center.	Each end and not less than 70% of the wall length.
Three Story	Adhesive or expansion anchors shall be ½ inch minimum diameter spaced at 2 feet 8 inches maximum center to center; or ⅝ inch minimum diameter spaced at 4 feet maximum center to center.	100% of the wall length.

[1] Plate washers for use with adhesive or expansion anchors shall be two inches by two inches by three-sixteenths inch for one-half-inch diameter anchors and two and one-half inches by two and one-half inches by one-fourth inch for five-eighths-inch diameter anchors.

[2] Existing sill plate anchor bolts shall be permitted to provide all or a portion of the sill plate connection requirement if:

[2.1] The anchor bolt is cast in concrete and in sound condition,

[2.2] The diameter size and maximum spacing meets or exceeds the requirements of this table,

[2.3] A new plate washer conforming to Footnote 1 is installed, and

[2.4] The sill plate is connected to a snug-tight condition and torque tested per Subsection 18.69.040.C.1.

[3] Anchor side plates shall be permitted when conditions prevent anchor installation vertically through the sill plate. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.70 VOLUNTARY EARTHQUAKE HAZARD REDUCTION IN EXISTING WOOD FRAME RESIDENTIAL BUILDINGS WITH SOFT, WEAK OR OPEN FRONT WALLS

18.70.010 Purpose.

The purpose of this chapter is to promote the public welfare and safety by reducing the risk of death or injury that may result from the effects of earthquakes on existing wood-frame multi-unit residential buildings. The ground motion of the Northridge earthquake caused the loss of human life, personal injury and property damage in these types of buildings. This chapter creates minimum standards to strengthen the more vulnerable portions of these structures. When fully followed, these minimum standards will substantially improve the performance of these buildings but will not necessarily prevent all earthquake-related damage. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.70.020 Scope.

The provisions of this chapter shall apply to all existing wood frame buildings or portions thereof, designed using the Building Code in effect before January 1, 1995, which are used as hotels, lodging houses, congregate residences or apartment houses where:

A. The ground floor portion of the wood frame structure contains parking or other similar open floor space that causes soft, weak or open front wall lines as defined in this chapter and there exists one or more levels above; or

B. The walls of any story or basement of wood construction are laterally braced with nonconforming structural materials as defined in this chapter and there exists two or more levels above. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.70.030 Definitions.

Notwithstanding the applicable definitions, symbols and notations in this title, the following definitions shall apply for the purposes of this chapter:

"Apartment house" means any building or portion thereof which contains three (3) or more dwelling units, and for the purposes of this chapter, includes residential condominiums.

"Aspect ratio" means the ratio of the height of a wall section to its width.

"Congregate residence" means any building or portion thereof which contains facilities for living, sleeping and sanitation, as required by this code, and may include facilities for eating and cooking, for occupancy by other than a family. A congregate residence may be a shelter, convent, monastery, dormitory, and fraternity or sorority house but does not include jails, hospitals, nursing homes, hotels or lodging houses.

"Cripplewall" means a wood-framed stud wall extending from the top of the foundation wall to the underside of the lowest floor framing.

"Dwelling unit" means any building or portion thereof which contains living facilities, including provisions for sleeping, eating, cooking and sanitation, as required by this code, for not more than one (1) family, or congregate residence for ten (10) or fewer persons.

"Expansion anchor" means an approved mechanical fastener placed in hardened concrete, designed to expand in a self-drilled or pre-drilled hole of a specified size and engage the sides of the hole in one (1) or more locations to develop shear and/or tension resistance to applied loads without grout, adhesive or drypack.

"Ground floor" means any floor within the wood frame portion of a building whose elevation is immediately accessible from an adjacent grade by vehicles or pedestrians. The ground floor portion of the structure does not include any level that is completely below adjacent grades.

"Guest room" means any room or rooms used or intended to be used by a guest for sleeping purposes. Every one hundred (100) square feet of superficial floor area in a congregate residence shall be considered a guest room.

"Hotel" means any building containing six (6) or more guest rooms intended or designed to be used, rented, hired out to be occupied, or which are occupied for sleeping purposes by guests.

"Level" means a story, basement or under floor space of a building with cripple walls exceeding four feet (4') in height.

"Lodging house" means any building or portion thereof containing at least one (1) but not more than five (5) guest rooms where rent is paid in money, goods, labor or otherwise.

"Motel" means a hotel as defined in this chapter.

"Multi-unit residential buildings" means hotels, lodging houses, congregate residences and apartment houses.

"Nonconforming structural materials" means wall bracing materials for seismic loads whose allowable shear value was reduced or whose maximum allowable aspect ratio was decreased since the original building construction. These methods or materials include, but are not limited to cement or gypsum plaster, gypsum wall board, diagonal or let-in bracing, straight or diagonal wood sheathing, particle board and structural wood panels.

"Open front wall line" means an exterior wall line without vertical elements of the lateral-force-resisting system which requires tributary seismic forces to be resisted by diaphragm rotation or excessive cantilever beyond parallel lines of shear walls. Diaphragms that cantilever more than twenty-five percent (25%) of the distance between lines of lateral-force-resisting elements shall be considered excessive. Exterior exit balconies of six feet (6') or less in width shall not be considered excessive cantilevers.

"Retrofit" means an improvement of the lateral-force-resisting system by alteration of existing structural elements or addition of new structural elements.

"Soft wall line" means a wall line whose lateral stiffness is less than required by story drift limitations or deformation compatibility requirements of this chapter. In lieu of analysis, this may be defined as a wall line in a story where the story stiffness is less than seventy percent (70%) of the story above for the direction under consideration.

"Story strength" means the total strength of all seismic-resisting elements sharing the same story shear in the direction under consideration.

"Wall line" means any length of a wall along a principal axis of the building used to provide resistance to lateral loads. Parallel wall lines separated by less than four feet (4') shall be considered one wall line for the distribution of loads.

"Weak wall line" means a wall line laterally braced with nonconforming structural materials or a wall line in a story where the story strength is less than eighty percent (80%) of the story above in the direction under consideration. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.70.040 General requirements for phased construction.

When the building contains three (3) or more levels, the work specified in this chapter shall be permitted to be done in the following phases. Work shall start with Phase 1 unless otherwise approved by the Building Official. When the building does not contain the conditions shown in any phase, the sequence of retrofit work shall proceed to the next phase in numerical order.

A. Phase 1 Work. The first phase of the retrofit work shall include the ground floor portion of the wood structure that contains parking or other similar open floor space.

B. Phase 2 Work. The second phase of the retrofit work shall include the walls of any level of wood construction with two (2) or more levels above, which are laterally braced with nonconforming structural materials.

C. Phase 3 Work. The third and final phase of the retrofit work shall include the remaining portions of the building up to, but not including, the top story as specified in Subsection 18.70.050.B. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.70.050 Analysis and design.

A. General. Every building within the scope of this chapter shall be analyzed, designed and constructed in conformance with this code except as modified herein. No alteration of the existing lateral-force-resisting or vertical load-carrying system shall reduce the strength or stiffness of the existing structure.

B. Scope. This chapter requires the alteration, repair, replacement or addition of structural elements and their connections to meet the strength and stiffness requirements herein. The lateral load path analysis shall include the resisting elements and connections from the wood diaphragm above any soft, weak or open front wall lines to the foundation soil interface or reinforced concrete slab or masonry wall supporting elements below. The top story of any building need not be analyzed. The lateral load path analysis for added structural elements shall also include evaluation of the allowable soil bearing and lateral pressures in accordance with Section 1803 of the California Building Code adopted in Chapter 18.40.

EXCEPTION: When an open front, weak or soft wall line exists due to parking at the ground level of a two-level building and the parking area

is less than twenty percent (20%) of the ground floor level, then only the wall lines in the open, weak or soft directions of the enclosed parking area, need comply with the provisions of this chapter.

C. Design base shear. The design base shear shall be seventy-five percent (75%) of that currently required by ASCE 7-16 Section 12.8.1.

D. Vertical distribution of forces. The total seismic force shall be distributed over the height of the structure based on Formula (12.8-11 and 12.8-12) in ASCE 7-16 Section 12.8.3. Distribution of force by story weight shall be permitted for two-story buildings. The value of R used in the design of any story shall be less than or equal to the value of R used in the given direction for the story above.

E. Weak story limitation. The structure shall not exceed thirty (30) feet in height or two (2) levels if the lower level strength is less than sixty-five percent (65%) of the story above. Existing walls shall be strengthened as required to comply with this provision unless the weak level can resist a total lateral seismic force of Ω_o per Subsection 18.70.050.C times the design force prescribed in Subsection 18.70.050.D. The story strength for each level of all other structures shall be a minimum of eighty percent (80%) of the story above.

F. Story drift limitation. The calculated story drift for each retrofitted level shall not exceed the allowable deformation compatible with all vertical load-resisting elements and 0.005 or 0.04/R times the story height. The calculated story drift shall not be reduced by the effects of horizontal diaphragm stiffness but shall be increased when these effects produce rotation. The effects of rotation and soil stiffness shall be included in the calculated story drift when lateral loads are resisted by vertical elements whose required depth of embedment is determined by pole formulas such as Equation (18-1), (18-2) and (18-3) in Section 1807.3.2 of the California Building Code adopted in Chapter 18.40. The coefficient of variation of subgrade reaction used in the deflection calculations shall be provided from an approved geotechnical engineering report or other approved methods.

G. PΔ effects. The requirements of ASCE 7-16 Section 12.8.7 shall apply except as modified herein. All framing elements not required by the design to be part of the lateral-force-resisting system shall be investigated and shown to be adequate for vertical load-carrying capacity when displaced Ω_o per Subsection 18.70.050.C times the displacements resulting from the required lateral force. The stress analysis of cantilever columns shall use a buckling factor of 2.1 for the direction normal to the axis of the beam.

H. Ties and continuity. All parts of the structure included in the scope of Subsection 18.70.050.B shall be interconnected and the connection shall be capable of resisting the seismic force created by the parts being connected. Any smaller portion of a building shall be tied to the remainder of the building with elements having a strength of 0.1833 times the tributary dead load of the smaller portion.

A positive connection for resisting a horizontal force acting parallel to the member shall be provided for each beam, girder or truss included in the lateral load path. This force shall not be less than 0.08 times the combined tributary dead and live loads or as required by the lateral load path transfer, whichever is greater.

I. Collector elements. Collector elements shall be provided which can transfer the seismic forces originating in other portions of the building to the elements within the scope of Subsection 18.70.050.B that provide resistance to those forces.

J. Horizontal diaphragms. The analysis of shear demand or capacity of an existing plywood or diagonally sheathed horizontal diaphragm need not be investigated unless the diaphragm is required to transfer lateral forces from the lateral-resisting elements above the diaphragm to other lateral-force-resisting elements below the diaphragm due to offset in placement of the elements. Wood diaphragms in structures that support floors or roofs above shall not be allowed to transmit lateral forces by rotation or cantilever. However, rotational effects shall be accounted for when unsymmetric wall stiffness increases shear demands.

EXCEPTION: Diaphragms that cantilever twenty-five percent (25%) or less of the distance between lines of lateral-force-resisting elements from which the diaphragm cantilevers may transmit their shears by cantilever provided that rotational effects on shear walls parallel and perpendicular to the load are accounted for.

K. Shear walls. Shear walls shall have sufficient strength and stiffness to resist the tributary seismic loads and shall conform to the special requirements of this subsection.

1. Gypsum or plaster products. Gypsum or plaster products shall not be used to provide lateral resistance.

2. Wood structural panels.

a. Drift limit. Wood structural panel shear walls shall meet the story drift limitation of Subsection 18.70.050.F. Conformance to the story drift limitation shall be determined by approved testing or calculation or analogies drawn therefrom and not the use of an aspect ratio. Calculated deflection shall be in accordance with Section 2305.3 of the California Building Code adopted in Chapter 18.40 and twenty-five percent (25%) shall be added to account for inelastic action and repetitive loading. Contribution to the deflection from the anchor or tie down slippage shall also be included. The slippage contribution shall include the vertical elongation of the metal, the vertical slippage of the connectors and compression or shrinkage of the wood elements. The vertical slippage shall be multiplied by the aspect ratio and added to the total horizontal deflection. Individual shear panels shall be permitted to exceed the maximum aspect ratio provided the story drift and allowable shear capacities are not exceeded.

b. Openings. Openings are permitted in shear walls if they do not exceed fifty percent (50%) of the height or width of the shear wall. The remaining portion of the shear wall shall be strengthened for the transfer and increase of all shearing forces caused by the opening. The resulting shear wall shall be analyzed as a mosaic of shear-resisting elements. Blocking and steel strapping shall be employed at the corners of the opening to transfer forces from discontinuous boundary elements into adjoining panel elements.

The effects of openings on the stiffness of the shear wall shall be demonstrated to comply with the requirements of Subsection 18.70.050.F. The stiffness shall be calculated using the properties of the different shear elements making up the shear wall or it shall be demonstrated by approved testing. When shear walls cannot be made to conform to the requirements of this section because of existing openings, the openings shall be relocated or reduced in width to meet the strength and stiffness requirements of the lateral loads. Relocated and altered openings shall comply with the emergency escape requirements in Chapter 10 of the California Building Code adopted in Chapter 18.40. Relocated and altered openings shall comply with the light and ventilation requirements in Chapter 12 of the California Building Code adopted in Chapter 18.40 or Chapter 3 of the California Residential Code adopted in Chapter 18.41 unless otherwise approved by the Building Official.

c. Wood species of framing members. Allowable shear values for wood structural panels shall consider the species of the framing members. When the allowable shear values are based on Douglas Fir-larch framing members and framing members are constructed of other species of lumber, the allowable shear values shall be multiplied by the appropriate factors determined in accordance with Chapter 23 of the California Building Code adopted in Chapter 18.40.

3. Mechanical penetrations. Mechanical penetrations in shear walls that exceed the provisions of Chapter 23 of the California Building Code adopted in Chapter 18.40 or the California Building Code adopted in Chapter 18.40 or the California Residential Code adopted in Chapter 18.41 shall be accounted for in the design or the shear wall shall be analyzed as two separate walls on each side of the penetration.

4. Substitution for three-inch nominal width framing members. Two (2) two-inch nominal width framing members shall be permitted in lieu of any required three-inch nominal width framing member when the existing and new framing member are of equal dimensions, are connected as required

to transfer the in-plane shear between them and the sheathing fasteners are equally divided between them.

5. Hold-down connectors.

a. Expansion anchors in tension. Expansion anchors that provide tension strength by friction resistance shall not be used to connect hold down devices to existing concrete or masonry elements. Expansion anchors shall be permitted to provide tension strength by bearing.

b. Required depth of embedment. The required depth of embedment or edge distance for the anchor used in the hold down connector shall be provided in the concrete or masonry below any plain concrete slab unless satisfactory evidence is submitted to the Building Official that shows that the concrete slab and footings are of monolithic construction.

c. Required preload of bolted hold-down connectors. Bolted hold down connectors shall be preloaded to reduce slippage of the connector. Preloading shall consist of tightening the nut on the tension anchor after the placement but before the tightening of the shear bolts in the panel flange member. The tension anchor shall be tightened until the shear bolts are in firm contact with the edge of the hole nearest the direction of the tension anchor. Hold down connectors with self-jigging bolt standoffs shall be installed in a manner to permit preloading. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.70.060 Materials of construction.

A. New materials. All materials approved by this title, including their appropriate allowable stresses and minimum aspect ratios, shall be permitted to meet the requirements of this chapter.

B. Allowable foundation and lateral pressures. Allowable foundation and lateral pressures shall be permitted to use the values from Table 1806.2 of the California Building Code adopted in Chapter 18.40. The coefficient of variation of subgrade reaction shall be established by an approved geotechnical engineering report or other approved methods when used in the deflection calculations of embedded vertical elements as required in Subsection 18.70.050.F.

C. Existing materials. All existing materials shall be in sound condition and constructed in conformance to this code before they can be used to resist the lateral loads prescribed in this chapter. The verification of existing material conditions and their conformance to these requirements shall be made by physical observation reports, material testing or record drawings as determined by the responsible registered design professional of record and approved by the Building Official.

1. Horizontal wood diaphragms. Existing horizontal wood diaphragms that require analysis under Subsection 18.70.050.J shall be permitted to use Table A-23-C of Chapter 18.68 this title for their allowable values.

2. Wood structural panel shear walls.

a. Allowable nail slip values. When the required drift calculations of Subsection 18.70.050.K.2.a rely on the lower slip values for common nails or surfaced dry lumber, their use in construction shall be verified by exposure. The use of box nails and unseasoned lumber may be assumed without exposure. The verification of surfaced dry lumber shall be by identification conforming to Chapter 23 of the California Building Code adopted in Chapter 18.40.

b. Reduction for clipped nail heads. When exposed nails do not meet the nominal head sizes required for hand-driven nails in Chapter 23 of the California Building Code adopted in Chapter 18.40, the allowable shear capacity for wood structural panel shear walls shall be proportionately reduced. The reduction shall be a percentage of the reduction in the nail head area below the required nail head area including tolerances.

c. Plywood panel construction. When verification of the existing plywood materials is by use of record drawings alone, the panel construction for plywood shall be assumed to be of three plies.

d. Framing members of other species. When verification of the existing wood material is by use of record drawings, the allowable shear capacity shall be multiplied by the reduction factor of 0.82

for buildings built on or after 1960. Buildings built before this period shall use the reduction factor 0.65. When verification of the existing wood material is by identification in conformance to Chapter 23 of the California Building Code adopted in Chapter 18.40, the allowable shear capacity shall be determined in accordance with Subsection 18.70.050.K.2.c.

3. Lumber. When the existing dimensioned lumber is not identified in conformance to Chapter 23 of the California Building Code adopted in Chapter 18.40, the allowable stresses shall be permitted for the structural elements specified below.

Posts and Beams	Douglas Fir-larch No. 1
Joists and Rafters	Douglas Fir-larch No. 2
Studs, Blocking	Hem Fir Stud

4. Structural steel. All existing structural steel shall be permitted to use the allowable stresses for Grade A36. Existing pipe or tube columns shall be assumed to be of minimum wall thickness unless verified by testing or exposure.

5. Strength of concrete. All existing concrete footings shall be permitted to use the allowable stresses for plain concrete with a compressive strength of two thousand (2,000) psi. The strength of existing concrete with a record compressive strength greater than two thousand (2,000) psi shall be verified by testing, record drawings or Department records.

6. Existing sill plate anchorage. Existing cast-in-place anchor bolts shall be permitted to use the allowable service loads for bolts with proper embedment when used for shear resistance to lateral loads. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.70.070 Required information on construction documents.

A. General. The construction documents shall show all necessary dimensions and materials for plan review and construction and shall accurately reflect the results of the engineering investigation and design.

B. Existing construction. The construction documents shall show the existing diaphragm and shear wall sheathing and framing materials, fastener type and spacing, diaphragm and shear wall connections, continuity ties, and collector elements. The plans shall also show the portion of the existing materials that needs verification during construction.

C. New construction.

1. Foundation plan elements. The foundation plan shall include the size, type, location and spacing of all anchor bolts with the required depth of embedment, edge and end distance; the location and size of all columns for braced or moment frames; referenced details for the connection of braced or moment frames to their footing; and referenced sections for any grade beams and footings.

2. Framing plan elements. The framing plan shall include the width, location and material of shear walls; the width, location and material of frames; references on details for the column-to-beam connectors, beam-to-wall connections, and shear transfers at floor and roof diaphragms; and the required nailing and length for wall top plate splices.

3. Shear wall schedule, notes and details. Shear walls shall have a referenced schedule on the construction documents that includes the correct shear wall capacity in pounds per foot; the required fastener type, length, gauge and head size; and a complete specification for the sheathing material and its thickness. The schedule shall also show the required location of three-inch (3") nominal or two (2) two-inch (2") nominal edge members; the spacing of shear transfer elements, such as framing anchors or added sill plate nails; the required hold down with its bolt, screw or nail sizes; and the dimensions, lumber grade and species of the attached framing member.

Notes shall show required edge distance for fasteners on structural wood panels and framing members; required flush nailing at the plywood surface; limits of mechanical penetrations; and the sill plate material assumed in the design. The

limits of mechanical penetrations shall also be detailed showing the maximum notching and drilled hole sizes.

4. General notes. General notes shall show the requirements for material testing, special inspection, structural observation and the proper installation of newly added materials.

5. Registered design professional of record's statement. The responsible registered design professional of record shall provide the following statements on the approved construction documents:

a. "I am responsible for designing this building's seismic strengthening in compliance with the minimum seismic resistance standards of Chapter 18.70 of the Long Beach Municipal Code."

and when applicable:

b. "The Registered Special Inspector, required as a condition of the use of structural design stresses requiring continuous inspection, will be responsible to me." (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.71 VOLUNTARY EARTHQUAKE HAZARD REDUCTION IN EXISTING REINFORCED CONCRETE BUILDINGS AND CONCRETE FRAME BUILDINGS WITH MASONRY INFILLS

18.71.010 Purpose.

The purpose of this chapter is to promote public safety and welfare by reducing the risk of death or injury that may result from the effects of earthquakes on concrete buildings and concrete frame buildings with masonry infills. The Northridge Earthquake caused widespread damage to these buildings, including some collapses.

The recent Great Hanshin earthquake in Kobe, Japan, also caused several hundred of these buildings to collapse. These nonductile concrete buildings are frequently used in Long Beach for department stores, office buildings, hotels, parking structures and some mid-rise condominiums. Their performance in an earthquake is essential to the life and safety of their occupants and the overall stability of the local economy. This chapter provides voluntary retrofit standards that, when fully followed, will substantially improve the seismic performance of these buildings but will not necessarily prevent all earthquake damage. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.71.020 Scope.

The provisions of this chapter may be applied to all buildings designed under Building Codes in effect prior to January 13, 1976, or built with building permits issued prior to January 13, 1977, having concrete floors and/or concrete roofs supported by reinforced concrete walls or concrete frames and columns, and/or concrete frames with masonry infills. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.71.030 Definitions.

For purposes of this chapter, the applicable definitions and notations in Section 1602 of the California Building Code adopted in Chapter 18.40 and the following definition shall apply:

"Masonry infill" means the unreinforced or reinforced masonry wall construction within a reinforced concrete frame. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.71.040 General requirements.

When the owner of each building within the scope of this chapter causes an investigation of the existing construction, a structural analysis shall be made of the building by a registered design profession licensed by the State of California.

EXCEPTION: Regular concrete shear wall buildings, of four (4) stories in height and under, may be shown to be in conformance with this

chapter by filing a report signed by a registered design profession licensed by the State of California containing the information specified in Section 18.71.090. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.71.050 Criteria selection.

A. Basis for analysis. The building shall be analyzed to determine the displacements caused by inertial force effects determined in accordance with the dynamic lateral analysis procedure of Section 18.71.060. The building structural system shall provide a complete load path for resisting the effects of seismic loading. The capacity of all parts of the structural system shall exceed the demand calculated by the dynamic analysis using the effective stiffnesses determined by a nonlinear analysis of the elements.

EXCEPTION: Buildings conforming to the requirements of Subsections 18.71.050.D.2 and 18.71.050.D.3 may be analyzed using the procedure specified in Sections 18.71.070 and 18.71.080, respectively.

B. Site geology and soil characteristics. In the absence of a soils investigation, the soil site class shall be taken as Type D.

C. Configuration requirements.

1. General. Each structure shall be designated as structurally regular or irregular.

2. Regular structures. Regular structures have no significant physical discontinuities in plan or vertical configuration or in their lateral-force-resisting systems such as the irregular features described below.

a. Irregular structures have significant physical discontinuities in configuration or in their lateral-force-resisting systems. Irregular features include, but are not limited to, those described in Tables 12.3-1 and ASCE 7-16 Section 12.3-2.

b. Structures having one or more of the features listed in Table 12.3-2 of ASCE 7-16 shall be designated as having a vertical irregularity.

EXCEPTION: Where none of the story drift ratios under equivalent lateral forces is greater than 1.3 times the story drift ratio of the story above, the structure may be deemed to not have the structural irregularities of Type 1 or 2 listed in Table 12.3-2 of ASCE 7-16. The story drift for this determination shall be calculated including torsional effects.

c. Structures having one (1) or more of the features listed in Table 12.3-1 of ASCE 7-16 shall be designated as having a plan irregularity.

d. Irregular structures conforming to the requirements of Subsection 18.71.050.D and Section 18.71.080 may be considered regular if the plan and vertical irregularities are removed by the addition of lateral load-resisting systems.

D. Selection of lateral analysis procedure.

1. General. Any structure may be analyzed using the dynamic lateral analysis procedures of Section 18.71.060. The equivalent lateral force procedure or the simplified analysis may be used for structures conforming to the requirements on the use of those analyses.

2. Equivalent lateral force. The equivalent lateral force procedure of Section 18.71.070 may be used for regular structures or irregular structures having plan irregularity only of not more than four (4) stories.

3. Simplified analysis. Regular structures of not more than four (4) stories conforming to the requirements of Section 18.71.080 may be analyzed for a prescribed strength of their systems and elements.

E. Alternative procedures.

1. General. Alternative lateral analysis procedures using rational analyses based on well-established principles of mechanics may be used in lieu of those prescribed in this chapter when approved by the Building Official.

2. Seismic isolation. Seismic isolation (Chapter 17 of ASCE 7-16, Seismic Design Requirements for Seismically Isolated Structures), energy dissipation and damping systems may be used to reduce story drift when approved by the Building Official. The isolated structure shall comply with

the drift requirements of Section 18.71.060. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.71.060 Dynamic lateral analysis procedure.

A. General. Structures shall be analyzed for seismic forces acting concurrently on the orthogonal axes of the structure. The effects of the loading on two orthogonal axes shall be combined by the square root of the sum of the squares (SRSS) methods.

B. Ground motion. The seismic ground motion values shall be determined in accordance with ASCE 7-16 and may be one of the following:

1. The elastic design response spectrum shall be seventy-five percent (75%) of the response spectrum described in ASCE 7-16 Section 11.4.6.

2. A site-specific response spectrum shall be seventy-five percent (75%) of the site-specific response spectrum described in ASCE 7-16 Section 11.4.8.

C. Mathematical model. The three-dimensional mathematical model of the physical structure shall represent the spatial distribution of mass and stiffness of the structure to an extent which is adequate for the calculation of the significant features of its dynamic response. All concrete and masonry elements shall be included in the model of the physical structure.

EXCEPTION: Concrete or masonry partitions that are adequately isolated from the concrete frame members and the floor above.

Cast-in-place reinforced concrete floors with span-to-depth ratios less than three (3) to one (1) may be idealized as rigid diaphragms. Other floors, including floors constructed of precast elements with or without a reinforced concrete topping in conformance with ASCE 7-16 Section 12.3.1.3 may be idealized as flexible diaphragms. All other floors not permitted to be idealized as rigid or flexible diaphragms shall be analyzed considering the effective in-plane stiffness of the diaphragm, including effects of cracking and discontinuity between precast elements, as described in ASCE 7-16 Section 12.3.1. Ramps that interconnect floor levels shall be modeled as having mass appropriately distributed on that element. The lateral stiffness of the ramp may be calculated as having properties based on the uncracked cross section of the slab exclusive of beams and girders.

D. Effective stiffness.

1. General. The effective stiffness of concrete and masonry elements or systems shall be calculated as the secant stiffness of the element or system with due consideration of the effects of tensile cracking and compression strain. The secant stiffness shall be taken from the force-displacement relationship of the element or system. The secant stiffness shall be measured as the slope from the origin to the intersection of the force-displacement relationship at the assumed displacement. The force-displacement relationship shall be determined by a nonlinear analysis. The force-displacement analysis shall include the calculation of the displacement at which strength degradation begins.

EXCEPTION: The initial effective moment of inertia of beams and columns in shear wall or infilled frame buildings may be estimated using Table 71-B. The ratio of effective moment of inertia used for the beams and for the columns shall be verified by Formulas (71-1), (71-2) and (71-3). The estimates shall be revised if the ratio used exceeds the ratio calculated by more than twenty percent (20%).

$$I_e = \left(\frac{M_{cr}}{M_a}\right)^3 I_g + \left[1 - \left(\frac{M_{cr}}{M_a}\right)^3\right] I_{cr} \qquad (71\text{-}1)$$

WHERE:

$$M_{cr} = \frac{f_r\, I_g}{y_t} \qquad (71\text{-}2)$$

and

$$f_r = 7.5 \sqrt{f'_c} \quad (71\text{-}3)$$

2. Infills. The effective stiffness of an infill shall be determined from a nonlinear analysis of the infill and the confining frame. The effect of the infill on the stiffness of the system shall be determined by differencing the force-displacement relationship of the frame-infill system from the frame-only system.

3. Model of infill. The mathematical model of an infilled frame structure shall include the stiffness effects of the infill as a pair of diagonals in the bays of the frame. The diagonals shall be considered as having concrete properties and only axial loads.

Their lines of action shall intersect the beam-column joints. The secant stiffness of the force-displacement relationship, calculated as prescribed in Subsection 18.71.060.D.2, shall be used to determine the effective area of the diagonals. The effective stiffness of the frame shall be determined as specified in Subsection 18.71.060.D.1. Other procedures that provide the same effective stiffness for the combination of infill and frame may be used when approved by the Building Official.

4. Effective stiffness of elements and systems. The effective stiffness shall be determined by an iterative method. The mathematical model using assumed effective stiffness shall be used to calculate dynamic displacements. The effective stiffness of all concrete and masonry elements shall be modified to represent the secant stiffness obtained from the nonlinear force displacement analysis of the element or system at the calculated displacement. A reanalysis of the mathematical model shall be made using the adjusted effective stiffness of existing and supplemental elements and systems until closure of the iterative process is obtained. A difference of ten percent (10%) from the effective stiffness used and that recalculated may be assumed to be closure of the iterative process.

E. Description of analysis procedures.

1. Response spectrum analysis. Response spectrum analysis is an elastic dynamic analysis of a structure utilizing the peak dynamic response of all modes having a significant contribution to total structural response. Peak modal responses are calculated using the ordinates of the appropriate response spectrum curve that correspond to the modal periods. Maximum modal contributions are combined in a statistical manner to obtain an approximate total structural response.

2. Number of modes. The requirement of Subsection 18.71.060.E.1 may be satisfied by demonstrating that for the modes considered, at least ninety percent (90%) of the participating mass of the structure is included in the calculation of response for each principal horizontal direction.

3. Combining modes. The peak displacements for each mode shall be combined by recognized methods. Modal interaction effects of three-dimensional models shall be considered when combining modal maxima.

4. Torsion. The three-dimensional analysis shall be considered as including all torsional effects including accidental torsional effects.

F. Material characteristics. The stress-strain relationship of concrete, masonry and reinforcement shall be determined by testing or from published data. The procedure for testing and determination of stress-strain values shall be as prescribed in one of the following:

1. Concrete. The compressive strength of existing concrete shall be determined by tests on cores sampled from the structure or may be taken from information given on the construction documents and confirmed by limited testing. A default value of horizontal shear stress may be used in Subsection 18.71.080.E.1 without testing of the compressive strength of the existing concrete.

a. The cutting of cores shall not significantly reduce the strength of the existing structure. Cores shall not be taken in columns. Existing reinforcement shall not be cut.

b. If the construction documents do not specify a minimum compressive strength of the classes of concrete, five (5) cores per story, with a mini-

mum of ten (10) cores, shall be obtained for testing. Exception: If the coefficient of variation of the compressive strength does not exceed fifteen percent (15%), the number of cores per story may be reduced to two (2) and the minimum number of tests reduced to five (5).

c. When the construction documents specify a minimum compressive strength, two (2) cores per story, per class of concrete, shall be taken in the areas where that concrete was to be placed. A minimum of five (5) cores shall be obtained for testing. If a higher strength of concrete was specified for columns than the remainder of the concrete, cores taken in the beams for verification of the specified strength of the beams shall be substituted for tests in the columns. The strength specified for columns may be used in the analyses if the specified compressive strength in the beams is verified.

d. The sampling for the concrete strength tests shall be distributed uniformly in each story. If the building has shear walls, a minimum of fifty percent (50%) of the cores shall be taken from the shear walls. Not more than twenty-five percent (25%) of the required cores shall be taken in floor and roof slabs. The remainder of cores may be taken from the center of beams at mid-span. In concrete frame buildings, seventy-five percent (75%) of the cores shall be taken from the beams.

e. The mean value of the compressive stresses obtained from the core testing for each class of concrete shall be used in the analyses. Values of peak strain that is associated with peak compressive stress may be taken from published data for the nonlinear analyses of reinforced concrete elements.

2. Solid grouted reinforced masonry. The compressive strength of solid grouted concrete block or brick masonry may be taken as two thousand (2,000) psi. The strain associated with peak stress may be taken as 0.0025.

3. Partially grouted masonry. A minimum of five (5) units shall be removed from the walls and tested in conformance with ASTM C90-14 Specification for Load Bearing Concrete Masonry Units. Compressive strength of the masonry may be determined in accordance with Chapter 21 of the California Building Code adopted in Chapter 18.40, assuming Type S mortar. The strain associated with peak stress may be taken as 0.0025.

4. Unreinforced masonry.

a. The stress-strain relationship of existing unreinforced masonry shall be determined by in-place cyclic testing. The test procedure shall conform to Section 18.71.100.

b. One (1) stress-strain test per story and a minimum of five (5) tests shall be made in the unreinforced masonry infills. The location of the tests shall be uniformly distributed throughout the building.

c. The average values of the stress-strain values obtained from testing shall be used in the nonlinear analyses of frame-infill assemblies or in the calculation of the effective diagonal brace that is used in the simplified analysis procedure of Section 18.71.080.

5. Reinforcement. The yield stress of each type of new or existing reinforcement shall be taken from Table 71-C unless the reinforcement is sampled and tested for yield stress. The axial reinforcement in columns of post-1933 buildings shall be assumed to be hard grade unless noted otherwise on the construction documents.

6. Combination of concrete and masonry materials. Combinations of masonry and concrete infills shall be assumed to have equal strain. The secant moduli at peak stress of the masonry and concrete shall be used to determine the effective transformed area of the composite material.

G. Story drift limitation.

1. Definition. Story drift is the displacement of one level relative to the level above or below calculated by the response spectrum analysis using the appropriate effective stiffness.

2. Limitation. The story drift is limited to that displacement that causes any of the following effects:

a. Compressive strain of 0.003 in the frame confining infill or in a shear wall.

b. Compressive strain of 0.004 in a reinforced concrete column unless the engineer can show by

published experimental research that the existing confinement reinforcement justifies higher values of strain.

c. Peak strain in masonry infills as determined by experimental data or by physical testing as prescribed in Section 18.71.100.

d. Displacement that was calculated by the nonlinear analysis as when strength degradation of any element began.

EXCEPTION: This subsection may be taken as the displacement that causes a strength degradation in that line of resistance equal to ten percent (10%) of the sum of the strength of the elements in that line of resistance.

e. A story drift of 0.015 using the dynamic analysis procedure or the forces specified in Section 18.71.070. This limitation shall not supersede the limitations of Subsections 18.71.060.G.2.a through 18.71.060.G.2.d.

H. Compressive strain determination.

1. General. The compressive strain in columns, shear walls and infills may be determined by the nonlinear analysis or a procedure that assumes plane sections remain plane.

2. Axial and flexural loading. The compressive strain shall be determined for combined flexure and axial loading. The flexural moments shall be taken from the response spectrum model for frame or shear wall buildings, and from the substructure model for infill frames. The axial loads shall have the following combination of effects, where L is unreduced live load:

U = 1.0D + 0.3L + 1.0E(71-4)

U = 0.9D - 1.0E(71-5)

I. Shear strength limitation. The required in-plane shear strength of all columns, piers and shear walls shall be the shear associated with the moments induced at the ends of columns or piers and at the base of shear walls by the story displacements. No strength reduction factors shall be used in the determination of strength. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.71.070 Equivalent lateral force procedure.

A. General. Structures shall be analyzed for prescribed forces acting concurrently on the orthogonal axes of the building. The effects of the loading on the two (2) orthogonal axes shall be combined as required by Subsection 18.71.060.A.

B. Base Shear for Analysis. The base shear used to determine story drifts shall be determined using seventy-five percent (75%) of the base shear as determined in accordance with ASCE 7-16 Section 12.8.1.

Where:

R = 1.4 for concrete frame buildings with masonry infill and all other reinforced concrete buildings.

EXCEPTION: R = 1.0 for single-story buildings. The R value in ASCE 7-16 Table 12.2-1 for new building design shall not be used for story drift determination.

C. Structure period. The value of T may be determined by either Method A or B as prescribed by ASCE 7-16 Section 12.8.2. The structure period calculated by Method B need not be limited to a percent of the value obtained by Method A.

D. Vertical distribution of forces. The base shear shall be distributed over the height of the structure in conformance with Formula (71-6).

$$C_{vx} = \frac{w_x h_x^{\,k}}{\sum_{i=1}^{i=n} w_i h_i^{\,k}} \qquad (71\text{-}6)$$

Where:

C_{vx} = vertical distribution factor to be applied to V to obtain the story force at level x.

k = an exponent related to building period as follows:

For buildings having a period of 0.4 seconds or less,

k = 1.0

For buildings having a period of 2.0 seconds or more,

k = 2.0

For buildings having a period between 0.4 and 2.0 seconds, k may be taken as two (2) or determined by linear interpolation between one (1) and two (2).

E. Horizontal distribution of shear. The effective stiffness of elements shall be used for the horizontal distribution of shear.

F. Horizontal torsional moments. Provision shall be made for increased displacements resulting from horizontal torsion. The effects of torsional moments shall be included in the determination of the effective stiffness of elements and systems. Reinforced concrete floors may be considered as rigid diaphragms.

G. Effective stiffness. The effective stiffness of concrete and masonry elements shall be determined as prescribed in Subsection 18.71.060.D.

H. Material characteristics. Material characteristics shall be determined as prescribed in Subsection 18.71.060.F.

I. Story drift limitations. Story drift limits shall be as prescribed in Subsection 18.71.060.G.

J. Compressive strain determination. Compressive strain shall be determined as prescribed in Subsection 18.71.060.H.

K. Shear strength limitation. The in-plane shear strength shall equal or exceed the shear forces determined as prescribed in Subsection 18.71.060.I. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.71.080 Simplified analysis procedure.

A. General. Structures conforming to the requirements of this section may be analyzed for having a required strength by a simplified analysis procedure.

B. Required features of the building. The building shall conform to all the following features, or the building shall be analyzed by the equivalent lateral force procedure or the dynamic lateral force procedure as prescribed by Subsection 18.71.050.D.

1. The lateral-resisting elements of the building shall be reinforced concrete shear walls or frames with solid masonry infills and infills which have openings in the masonry infills not exceeding ten percent (10%) of the gross area of the infill panel which has the opening(s).

2. The effective shear area of reinforced concrete shear walls on each orthogonal axis shall be calculated by passing a horizontal plane through each story level. The height of the plane shall be that height where the area of the shear walls is a minimum.

3. The reinforced concrete elements shall have no visible deterioration of concrete or reinforcement.

4. The vertical elements in the lateral-load-resisting system shall not have significant strength discontinuities; the story strength in any story shall not be less than ninety percent (90%) of the strength of the story above.

5. The lateral-force-resisting elements in all story levels shall form a system that is not subject to significant torsion. Significant torsion is the condition where the distance between the story center of rigidity and the story center of mass is greater than twenty percent (20%) of the width of the structure in the corresponding plan dimension.

6. The minimum ratio of area of reinforcement to gross area of wall in existing reinforced concrete shear walls shall be 0.0015 in both the vertical and horizontal direction or the minimum ratio of axial reinforcement in the columns of frames containing infills shall be 0.01.

7. The ratio of total height to base length of cantilevered or coupled shear walls shall be two (2) or less. The ratio of clear height to in-plane depth of piers in a shear wall shall be two (2) or less. Shear walls or piers having a height to in-plane depth ratio greater than two (2) shall be given an effective shear area of one-half (1/2) their area.

8. All concrete frames with infilled panels conforming to Subsection 18.71.080.B.1 above shall have total height to base length ratios of two (2) to one (1) or less.

C. Analysis procedure.

1. General. Supplemental elements may be added to the existing building to bring the structure into conformance with Subsection 18.71.090.B.

2. Seismic loading. The seismic loading shall be calculated by Subsection 18.71.070.B. The loading of each story level shall be calculated by Formula (71-6) of Subsection 18.71.070.D.

3. Relative rigidities. The relative rigidity of reinforced concrete shear walls may be based on the stiffness of uncracked sections. The relative rigidity of infill panels may be calculated using a common modulus of elasticity. Use of a combination of infills and reinforced concrete or masonry shear walls on any orthogonal axis is prohibited.

4. Required calculations. The calculations may be limited to computation of loads on the reinforced concrete shear walls or infilled frame panels that comply with Subsection 18.71.080.B and computation of the drag and tie forces that develop a complete load path. The loads shall include torsional effects.

D. Required strength of systems and elements.

1. The capacity of all parts of the structure shall exceed the demand calculated by use of the loading specified in Section 18.71.070.

2. The strength of infilled frame systems used for lateral load resistance in this section shall be calculated using only the infilled frames that conform to Subsection 18.71.080.B.1.

E. Shear stress limit.

1. The maximum horizontal shear stress in new and existing reinforced concrete shear walls shall not exceed two (f'c)1/2. For the purpose of this chapter, the horizontal shear stress may be taken as eighty (80) psi without testing as required by Subsection 18.71.060.F.1.

2. The in-plane shear stress in any masonry infilled panel shall not exceed thirty (30) psi. The calculation of shear stresses shall use net section area and only the area of the infilled masonry.

EXCEPTION: The in-plane strength of an infill panel without openings may be calculated by procedures described in published research that were verified by experimental testing and approved by the Building Official.

(ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.71.090 Minimum requirements for a limited structural analysis.

A. General. Structures conforming to the requirements of this section may be shown to be in conformance with this chapter by submission of the report described in this section.

B. Required features of the building. The building shall conform to all of the following features or the building shall be analyzed as prescribed by Subsection 18.71.050.D.

1. The lateral-load-resisting elements of the building shall be reinforced concrete shear walls.

2. The minimum ratio of area of reinforcement to gross area of the wall shall be 0.0015 in both the vertical and horizontal directions.

3. The reinforced concrete elements shall have no visible deterioration of concrete or reinforcement.

4. The area of concrete shear walls on each orthogonal axis at the first floor level shall be 1.5% of the area of the first floor of the building, where n is the number of floor and roof levels.

5. The area of the shear walls in all stories above the first floor shall not be more than one hundred percent (100%) or less than eighty percent (80%) of the area of shear walls at the first floor.

6. The concrete shear walls in all stories above the first floor shall be directly above the shear walls at the first floor which are used to calculate the percent of shear wall area to floor area.

7. The wall area must be uniformly distributed such that at least eighty percent (80%) of the wall area used in the calculation is symmetrically placed about the center of the building.

8. The area of the shear walls on each orthogonal axis shall be calculated by passing a horizontal plane through the first story level. The height of the plane shall be that height where the area of the shear walls is a minimum.

9. The ratio of total height to base width of cantilevered or coupled shear walls shall be two (2) or less. The ratio of the clear height to in-plane depth of piers in a shear wall shall be two (2) or

less. Shear walls or piers having a height to depth ratio greater than two (2) shall be given an effective area of one-half (1/2) of their area.

C. Information required in the report.

1. The report shall include data, sketches, plans and calculations that show conformance with the features given in this section.

2. The registered design professional of record shall meet with the representative of the Department at the site to review the report. (ORD-25-0019 § 1(Exh. A), 2025)

18.71.100 Determination of the stress-strain relationship of existing unreinforced masonry.

A. Scope. This section covers procedures for determining the expected compressive modulus, peak strain and peak compressive stress of unreinforced brick masonry used for infills in frame buildings.

B. General procedure. The outer wythe of multiple wythe brick masonry shall be tested by inserting two (2) flat jacks into the mortar joints of the outer wythe. The prism height, the vertical distance between the flat jacks, shall be five (5) bricks high. The test location shall have adequate overburden and/or vertical confinement to resist the flat jack forces.

C. Preparation for the test. Remove a mortar joint at the top and bottom of the test prism by saw cutting or drilling and grinding to a smooth surface. The cuts for inserting the flat jacks shall not have a deviation from parallel of more than three-eighths (3/8) inch. The deviation from parallel shall be measured at the ends of the flat jacks. The width of the saw cut shall not exceed the width of the mortar joint. The length of the saw cut on the face of the wall may exceed the length of the flat jacks by not more than twice the thickness of the outer wythe plus one (1) inch.

D. Required equipment. The flat jacks shall be rectangular or with semicircular ends to mimic the radius of the saw blade used to cut the slot for the flat jack. The length of the flat jack shall be eighteen (18) inches maximum and sixteen (16) inches minimum. This length shall be measured on the longest edge of a flat jack with semicircular ends. The maximum width of the flat jack shall not exceed the average width of the wythe of brick that is loaded. The minimum width of a flat jack shall be three and one-half (3-1/2) inches measured out-to-out of the flat jack. The flat jack shall have a minimum of two (2) ports to allow air in the flat jack to be replaced by hydraulic fluid. The unused port shall be sealed after all the air is forced out of the flat jack. The thickness of the flat jack shall not exceed three-quarters (3/4) of the minimum height of the mortar joint. It is recommended that the height of the flat jack be about one-half (1/2) of the width of the slot cut for installation of the flat jack. The remaining space can be filled with steel shim plates having plan dimensions equal to the flat jack.

E. Data acquisition equipment. The strain in the tested prism shall be recorded by gages or similar recording equipment having a minimum range of one ten-thousandth (1/10,000) of an inch. The compressive strain shall be measured on the surface of the prism and shall have a gage length, measured vertically on the face of the prism, of ten (10) inches minimum. The gage points shall be fixed to the wall by drilled-in anchors or by anchors set in epoxy or similar material. The support for the data-recording apparatus shall be isolated from the wall by a minimum of one-sixteenth (1/16) inch so that the gage length used in the calculation of strain can be taken as the measured length between the anchors of the equipment supports. The gaging equipment shall be as close to the face of the prism as possible to minimize the probability of erroneous strain measurements caused by bulging of the prism outward from its original plane.

The compressive strain data shall be measured at a minimum of two (2) points on the vertical face of the prism. These points shall be the one-third points of the length of the flat jacks plus or minus one-half (1/2) inch. As an alternative, the strain may be measured at three (3) points on the face of the prism.

These points shall be spaced at one quarter of the flat jack length plus or minus one-half (1/2) inch.

Horizontal gages at mid-height of the prism may be used to record Poisson strain, but this gage should be considered as recording data secondary in importance to the vertical gages and its placement shall not interfere with placing the vertical gaging as close as possible to the face of the prism.

F. Loading and recording data. The loading shall be applied by hydraulic pumps that add hydraulic fluid to the flat jacks in a controlled method. The application of load shall be incremental and held constant while strains are being recorded. The increasing loading for each cycle of loading shall be divided into a minimum of four (4) equal load increments. The strain shall be recorded at each load step. The decrease in loading shall be divided into a minimum of two (2) equal unloading increments. Strain shall be recorded on the decreasing load steps. The hydraulic pressure shall be reduced to zero and the permanent strain caused by this cycle of loading shall be recorded. This procedure shall be used for each cycle of loading.

The load applied in each cycle of load shall be determined by estimating the peak compressive stress of the existing brick masonry. The hydraulic pressure needed to cause this peak compressive stress in the prism shall be calculated by assuming the area of the loaded prism is equal to the area of the flat jack. A maximum of one-third (1/3) of this pressure, rounded to the nearest twenty-five (25) psi, shall be applied in the specified increments to the peak pressure prescribed for the first cycle of loading. After recording the strain data, this pressure shall be reduced in a controlled manner to each of the specified increments for unloading and for recording data. The maximum jack pressure on the subsequent cycles shall be one-half (1/2), two-thirds (2/3), five-sixths (5/6) and estimated peak pressure. If the estimated peak compressive stress is less than the existing peak compressive stress, the cyclic loading and unloading shall continue using increments of increasing pressure equal to those used prior to the application of estimated peak pressure.

All strain data shall be recorded to one ten-thousandth (1/10,000) of an inch. Jack pressure shall be recorded in increments of twenty-five (25) psi pressure.

G. Quality control. The flat jack shall be calibrated before use by placing the flat jack between bearing plates of two (2) inches minimum thickness in a calibrated testing machine. A calibration curve to convert hydraulic pressure in the flat jack to total load shall be prepared and included in the report of the results of testing. Flat jacks shall be recalibrated after three uses.

The hydraulic pressure in the flat jacks shall be indicated by a calibrated dial indicator having a subdivision of twenty-five (25) psi or less. The operator of the hydraulic pump shall use this dial indicator to control the required increments of hydraulic pressure in loading and unloading.

H. Interpretation of the data. The data obtained from the testing required by Subsection 18.71.060.F.4.b shall be averaged both in expected peak compressive stress and the corresponding peak strain. The envelope of the averaged stress-strain relationship of all tests shall be used for the material model of the masonry in the infilled frame. If two (2) strain measurements have been made on the surface of the prism, these strain measurements shall be averaged for determination of the stress-strain relationship for the test. If three (3) strain measurements have been made on the surface of the prism, the data recorded by the center gage shall be given a weight of two (2) for preparing the average stress-strain relationship for the test. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.71.110 Evaluation of existing structural conditions.

The registered design professional of record shall report any observed structural conditions and structural damage that, in the registered design professional's judgment, have imminent life-safety effects on the structure and recommend repairs. Evaluations and repairs shall be reviewed and approved by the Department. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.71.120 Materials of construction.

A. General. In addition to the seismic analysis required elsewhere in this chapter, the registered design professional responsible for the seismic analysis of the building shall record the information required by this section on the approved construction documents.

B. Information required. The construction documents shall accurately reflect the results of the engineering investigation and design, and show all pertinent dimensions and sizes for plan review and construction. The following shall be provided:

1. The construction documents of the existing construction shall be adequately dimensioned and furnish adequate details in schedules, notes and sections to fully describe the existing building. The construction documents shall include a foundation plan, floor and roof plans which indicate new work, and existing construction;

2. Elevations of the structural system showing sizes and dimensions;

3. Schedules, sections and details showing reinforcement of walls, slabs, beams, joists, girders, columns and foundations.

EXCEPTION: If copies of the original construction documents are submitted for information during the plan check, the information required by Subsections 18.71.120.B.1 through 18.71.120.B.3 may be limited to areas of and adjacent to new construction on a complete outline at that level of the building.

4. Sections and details showing attachments and joining of new and existing structures. All reinforcement in the existing structure shall be shown in these sections and details;

5. Specifications and/or general notes fully describing demolition, materials and methods, testing and inspection requirements.

C. Registered design professional of record's statement. The responsible registered design professional of record shall state on the approved construction documents the following:

1. "I am responsible for this building's seismic strengthening design in compliance with the minimum seismic resistance standards of Chapter 18.71 of the Long Beach Municipal Code."

Or when applicable:

2. "The registered special inspector, required as a condition of the use of structural design stresses requiring continuous inspection, will be responsible to me."

TABLE 71-A RATING CLASSIFICATIONS CLASSIFICATION TYPE OF BUILDING

CLASSIFICATION	TYPE OF BUILDING
Group I	Essential buildings
Group II	Buildings with occupant load of 5,000 or more, or assembly rooms of 1,000 occupants or more, and malls as defined elsewhere in the code.
Group III	1,000 to 4,999 occupants
Group IV	300 to 999 occupants
Group V	All others

TABLE 71-B INITIAL EFFECTIVE MOMENT OF INERTIA OF CONCRETE MEMBERS

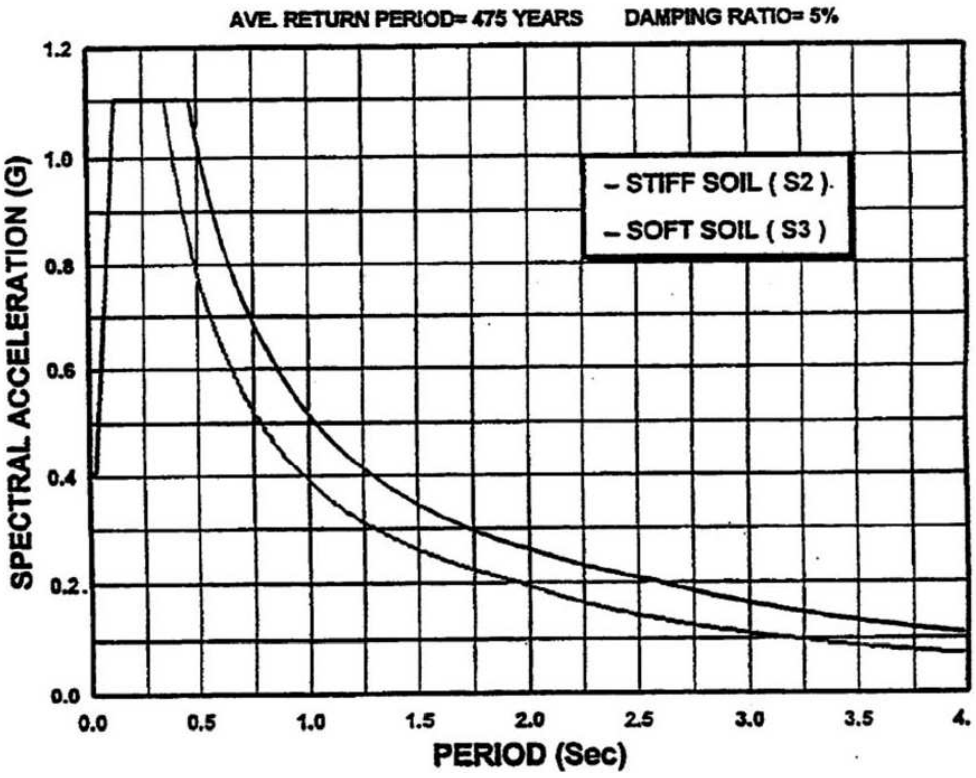
MEMBER	RANGE
Rectangular beams	0.30 - 0.5 I_g
T- and L-shaped beams	0.25 - 0.45 I_g
Columns P > 0.5 $f_c' A_g$	0.7 - 0.9 I_g
Columns P = 0.2 $f_c' A_g$	0.5 - 0.7 I_g
Columns P = - 0.05 $f_c' A_g$	0.3 - 0.5 I_g

TABLE 71-C ASSUMED YIELD STRESS OF EXISTING REINFORCEMENT

TYPE OF REINFORCEMENT AND ERA	ASSUMED YIELD STRESS, ksi
Pre-1940 — Structural and intermediate grade, plain and deformed	45
Pre-1940 — Twisted and hard grade	55
Post-1940 — Structural and intermediate grade	45
Post-1940 — Hard grade	60
ASTM A 615 Grade 40	50
ASTM A 615 Grade 60	70

For SI: 1 ksi = 6.894 MPa.

FIGURE 71-1 RESPONSE SPECTRA SHAPES



(ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.72 VOLUNTARY EARTHQUAKE HAZARD REDUCTION IN EXISTING REINFORCED CONCRETE AND REINFORCED MASONRY WALL BUILDINGS WITH FLEXIBLE DIAPHRAGMS

18.72.010 Purpose.

The purpose of this chapter is to promote public safety and welfare by reducing the risk of death or injury that may result from the effects of earthquakes on reinforced concrete and masonry wall buildings with flexible diaphragms designed under the Building Codes in effect prior to January 1, 1995. These buildings are potentially hazardous and prone to significant damage, including possible collapse, in a moderate to major earthquake. These structures typically shelter large numbers of persons and property for retail, food markets, food distribution centers, warehousing, aerospace, industrial/manufacturing and general business and office use. Their continued use after an earthquake is also essential to the local economy and its post-earthquake recovery.

The provisions of this chapter are minimum standards for structural seismic resistance established primarily to reduce the risk of loss of life or injury on both subject and adjacent properties and will not necessarily prevent all earthquake damage to an existing building which complies with these standards. This chapter shall not require existing electrical, plumbing, mechanical or fire safety systems to be altered unless they constitute a hazard to life or property.

This chapter provides voluntary retrofit standards for deficient wall anchorage systems on structures that are not subject to the mandatory provisions of Chapter 18.68. When fully followed, these standards will strengthen the portion of the structure that is most vulnerable to earthquake damage. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.72.020 Scope.

The voluntary provisions of this chapter shall apply to existing buildings of the following types:

A. Cast-in-place reinforced concrete or masonry wall buildings with flexible diaphragms designed under Building Codes in effect prior to January 1, 1995.

B. Tilt-up concrete wall buildings with flexible diaphragms designed under the Building Codes in effect prior to January 1, 1995, but after January 1, 1976. All existing reinforced masonry or concrete buildings with flexible diaphragms, including tilt-up concrete wall buildings, designed under the Building Code in effect on or after January 1, 1995, shall be designed in conformance with Chapter 16 of the California Building Code adopted in Chapter 18.40. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.72.030 Definitions.

For the purposes of this chapter, the applicable definitions in Chapter 2, Section 1602 of the California Building Code adopted in Chapter 18.40; Sections 1.2, 3.1.1, 4.1, 5.2, 6.2 and 11.2 of ASCE 7-16, and the following shall apply:

"Anchorage system" means the system of all structural elements and connections which support the concrete or masonry wall in the lateral direction, including diaphragms and subdiaphragms, wall anchorage and continuity or crosstie connectors in subdiaphragms and main diaphragms.

"Commenced construction" means construction pursuant to a valid building permit that has progressed to the point that one of the called inspections as required by the Department has been made and the work for which the inspection has been called has been judged by the Department to be substantial and has been approved by the Department.

"Existing building" means an erected building for which a legal building permit and a Certificate of Occupancy have been issued.

"Flexible diaphragm" means any diaphragm constructed of wood structural panel, diagonal or straight wood sheathing, metal decking without a structural concrete topping, or horizontal rod bracing.

"Historical building" means any building designated or currently in the process of being designated as a historical building by an appropriate federal, State or City jurisdiction.

"Reinforced concrete wall" means a concrete wall which has fifty percent (50%) or more of the reinforcing steel required for reinforced concrete in Chapter 19 of the California Building Code adopted in Chapter 18.40.

"Reinforced masonry wall" means a masonry wall which has fifty percent (50%) or more of the reinforcing steel required by Section 2106.1 of the California Building Code adopted in Chapter 18.40.

"Retrofit" strengthens or structurally improves the lateral force-resisting system of an existing building by alteration of existing or addition of new structural elements.

"Tilt-up concrete wall" is a form of precast concrete panel construction either cast in the horizontal position at the site and after curing, lifted and moved into place in a vertical position, or cast off-site in a fabricator's shop. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.72.040 Analysis and design.

A. Wall panel anchorage. Concrete and masonry walls shall be anchored to all floors and roofs which provide lateral support for the wall. The anchorage shall provide a positive direct connection between the wall and floor or roof construction capable of resisting a horizontal force equal to thirty percent (30%) of the tributary wall weight for all buildings, and forty-five percent (45%) of the tributary wall weight for essential buildings, or a minimum force of two hundred fifty (250) pounds per linear foot of wall, whichever is greater.

The required anchorage shall be based on the tributary wall panel assuming simple supports at floors and roof.

EXCEPTION: An alternate design may be approved by the Building Official when justified by well-established principles of mechanics.

B. Special requirements for wall anchors and continuity ties. The steel elements of the wall anchorage systems and continuity ties shall be designed by the allowable stress design method using a load factor of 1.7. The one-third (1/3) stress increase permitted by Section 1605.2 of the California Building Code adopted in Chapter 18.40 shall not be permitted for materials using allowable stress design methods.

The strength design specified in Section 1605 of the California Building Code adopted in Chapter 18.40, using a load factor of 1.43 in lieu of 1.0 for earthquake loading, shall be used for the design of embedment in concrete.

Wall anchors shall be provided to resist out-of-plane forces, independent of existing shear anchors.

EXCEPTION: Existing cast-in-place shear anchors may be used as wall anchors if the tie element can be readily attached to the anchors and if the registered design professional can establish tension values for the existing anchors through the use of approved as-built plans or testing, and through analysis showing that the bolts are capable of resisting the total shear load while being acted upon by the maximum tension force due to seismic loading. Criteria for analysis and testing shall be determined by the Building Official.

Expansion anchors are not allowed without special approval of the Building Official. Attaching the edge of plywood sheathing to steel ledgers is not considered as complying with the positive anchoring requirements of the code; and attaching the edge of steel decks to steel ledgers is not considered as providing the positive anchorage of

this code unless testing and analysis are performed which establish shear values for the attachment perpendicular to the edge of the deck.

C. Development of anchor loads into the diaphragm. Development of anchor loads into roof and floor diaphragms shall comply with Section 12.11.2.2.3 of ASCE 7-16.

EXCEPTION: If continuously tied girders are present, then the maximum spacing of the continuity ties is the greater of the girder spacing or twenty-four (24) feet.

In wood diaphragms, anchorage shall not be accomplished by use of toenails or nails subject to withdrawal, nor shall wood ledgers, top plates or framing be used in cross-grain bending or cross grain tension. The continuous ties required by Section 12.11.2.2.3 of ASCE 7-16 shall be in addition to the diaphragm sheathing.

Lengths of development of anchor loads in wood diaphragms shall be based on existing field nailing of the sheathing unless existing edge nailing is positively identified on the original construction plans or at the site.

At reentrant corners, continuity collectors may be required for existing return walls not designed as shear walls, to develop into the diaphragm a force equal to the lesser of the rocking or shear capacity of the return wall, or the tributary shear but not exceeding the capacity of the diaphragm. Shear anchors for the return wall shall be commensurate with the collector force. If a truss or beam other than rafters or purlins is supported by the return wall or by a column integral with the return wall, an independent secondary column is required to support the roof or floor members whenever rocking or shear capacity of the return wall is governing.

D. Anchorage at pilasters. Anchorage of pilasters shall be designed for the tributary wall anchoring load per Subsection 18.72.040.A, considering the wall as a two-way slab. The edge of the two-way slab shall be considered "fixed" when there is continuity at pilasters, and considered "pinned" at roof or floor levels. The pilasters or the walls immediately adjacent to the pilasters shall be anchored directly to the roof framing such that the existing vertical anchor bolts at the top of the pilasters are bypassed without causing tension or shear failure at the top of the pilasters.

EXCEPTION: If existing vertical anchor bolts at the top of the pilasters are used for the anchorage, then additional exterior confinement shall be provided.

The minimum anchorage at a floor or roof between the pilasters shall be that specified in Subsection 18.72.040.A.

E. Symmetry. Symmetry of connectors in the anchorage system is required. Eccentricity may be allowed when it can be shown that all components of forces are positively resisted and justified by calculations or tests.

F. Minimum member size. Wood members used to develop anchorage forces to the diaphragm shall be of minimum three-inch nominal width for new construction and replacement. All such members must be designed for gravity and earthquake forces as part of the wall anchorage system. For existing structural members, the allowable stresses shall be without the one-third (1/3) stress increase per Subsection 18.72.040.B.

G. Combination of anchor types. To repair and retrofit existing buildings, a combination of different anchor types of different behavior or stiffness shall not be permitted. The capacity of the new and existing connectors cannot be added.

H. Prohibited anchors. Usage of connectors that were bent or stretched from the intended use shall be prohibited.

I. Crack and damage repairs, evaluation of existing structural alterations. The registered design professional shall report any observed structural conditions and structural damage that have imminent life-safety effects on the buildings and recommend repairs, including alterations such as openings cut in existing wall panels without a building permit. Evaluations and repairs shall be reviewed and approved by the Department.

J. Miscellaneous. Existing mezzanines relying on the concrete or masonry walls for vertical or lateral support shall be anchored to the walls for the tributary mezzanine load. Walls depending

on the mezzanine for lateral support shall be anchored per Subsections 18.72.040.A through 18.72.040.C.

EXCEPTION: Existing mezzanines that have independent lateral and vertical support need not be anchored to the concrete or masonry walls.

Existing interior masonry or concrete walls not designed as shear walls, which extend to the floor above or to the roof diaphragm, shall also be anchored for out-of-plane forces per Subsections 18.72.040.A through 18.72.040.C. In the in-plane direction, the walls may be isolated or shall be developed into the diaphragm for a lateral force equal to the lesser of the rocking or shear capacity of the wall, or the tributary shear but not exceeding the diaphragm capacity.

K. Historical buildings. Qualified historical buildings shall be permitted to use alternate building standards or deviations from this chapter in order to preserve their original or restored architectural elements and features. See California Code of Regulations, Title 24, Part 8 (California Historical Building Code) for these standards. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.72.050 Materials of construction.

All materials permitted by this title, including their appropriate allowable stresses and those existing configurations of materials specified in Chapter 18.68, may be utilized to meet the requirements of this chapter. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.72.060 Information required on construction documents.

A. General. In addition to the seismic analysis required elsewhere in this chapter, the licensed registered design professional responsible for the seismic analysis of the building shall record the information required by this section on the approved construction documents.

B. Information required. The construction documents shall accurately reflect the results of the engineering investigation and design and show all pertinent dimensions and sizes for plan review and construction. The following shall be provided:

1. Floor plans and roof plans shall show the existing framing construction, diaphragm construction, proposed wall anchors, crossties and collectors. Existing nailing, anchors, ties and collectors shall also be shown on the plans if these are part of the design, and these structural elements need to be verified in the field.

2. At elevations where there is alterations or damage, the details shall show the roof and floor heights, dimensions of openings, location and extent of existing damage, and proposed repair.

3. Typical concrete or masonry wall sections with wall thickness, height and location of anchors shall be provided.

4. Details shall include the existing and new anchors and the method of development of anchor forces into the diaphragm framing, existing and new crossties, existing and new or improved support of the roof, and floor girders at pilasters or walls.

C. Registered design professional of record's statement. The responsible registered design professional of record shall state on the approved construction documents the following:

1. "I am responsible for this building's seismic strengthening design of the tilt-up concrete wall anchorage system in compliance with the minimum seismic resistance standards of Chapter 18.72 of the Long Beach Municipal Code."

Or when applicable:

2. "The Registered Special Inspector, required as a condition of the use of structural design stresses requiring continuous inspection, will be responsible to me." (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.74 LOW IMPACT DEVELOPMENT STANDARDS

18.74.010 Purpose.

The purpose of this chapter is to require the use of low impact development (LID) standards in the planning and construction of development projects. LID standards promote the goal of environmental sustainability by helping improve the quality of receiving waters, protecting the Los Angeles and San Gabriel River watersheds, maintaining natural drainage paths, and protecting potable water supplies within the City. The LID objective of controlling and maintaining flow rate is addressed through land development and stormwater management techniques that imitate the natural hydrology (or movement of water) found on the site. Using site design and best management practices that allow for storage and retention, infiltration, filtering, and flowrate adjustments achieve the goals of LID, advances sustainability and reduces the overall cost of stormwater management. The use of engineered systems, structural devices, and vegetated natural designs distributes stormwater and urban runoff across a development site maximizing the effectiveness of LID. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.74.020 Definitions.

"Brownfield" means a piece of industrial or commercial property that is abandoned or underused and often environmentally contaminated, especially one considered as a potential site for redevelopment.

"Development" means any construction to build any new public or private residential projects (whether single-family, multi-unit or planned unit development); new industrial, commercial, retail and other non-residential projects, including public agency projects; new impervious surface area; or mass grading for future construction. It does not include routine maintenance to maintain original line and grade, hydraulic capacity, or original purpose of facility, nor does it include emergency construction activities required to immediately protect public health and safety.

"LID Best Management Practices Manual" means a manual of LID standards and practices for stormwater pollution mitigation, including technical feasibility and implementation parameters, alternative compliance for technical infeasibility, as well as other rules, requirements and procedures as the City deems necessary, for implementing the provisions of this section of the Long Beach Municipal Code.

"Multi-Phased Project" shall mean any Development or Redevelopment implemented over more than one phase and the Site of a Multi-Phased Project shall include any land and water area designed and being used to store, treat or manage stormwater runoff in connection with the Development or Redevelopment, including any tracts, lots, or parcels of real property, whether Developed or not, associated with, functionally connected to, or under common ownership or control with such Development or Redevelopment.

"Offsite Runoff Mitigation Fee" means fee paid to the City for the management of storm water runoff generated from three-quarter (0.75) inch water quality storm in excess of the storm water runoff that is infiltrated, evapotranspired and/or stored for use. The Offsite Runoff Mitigation Fee shall be used by the City to construct or apply towards the construction of an offsite mitigation project within the same sub-watershed that will achieve at least the same level of water quality protection as if all of the runoff was retained on site.

"Redevelopment" means land-disturbing activities that result in the replacement of more than fifty percent (50%) of an existing building, structure or impervious surface area on an already developed site. It does not include routine maintenance to maintain original line and grade, hydraulic capacity, or original purpose of facility, nor does it include emergency construction activities required to immediately protect public health and safety or grinding/overlaying and replacement of existing parking lots.

"Site" means the land or water area where any "facility or activity" is physically located or conducted, including adjacent land use in connection with the facility or activity. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.74.030 LID requirements and applicability.

A. The provisions of this section establish the requirements for LID compliance that shall apply to all new Development and Redevelopment projects in the City of Long Beach as noted in the following:

1. Residential Development of four (4) units or less:

a. For new Development less than one (1) acre, or if Redevelopment alters more than fifty percent (50%) of existing buildings, structures or impervious surfaces of an existing developed site, comply with the standards and requirements of this chapter and implement at least two (2) adequately sized LID BMP alternatives from the LID Best Management Practices Manual.

b. For new Development that is one (1) acre and greater, the entire Site shall comply with the standards and requirements of this chapter and the LID Best Management Practices Manual.

2. Residential Developments of five (5) units or more and nonresidential Developments:

For new Development, or if Redevelopment alters more than fifty percent (50%) of existing buildings, structures or impervious surfaces of an existing developed site, the entire Site shall comply with the standards and requirements of this chapter and of the LID Best Management Practices Manual.

3. Nonresidential Developments in the Port of Long Beach Harbor District:

For new Development or Redevelopment projects located in the Port of Long Beach Harbor District as designated in the Zoning Regulations, the site shall comply with the LID BMP alternatives set forth in the Port of Long Beach Post-Construction Design Guidance Manual and in the LID Best Management Practices Manual. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.74.035 LID Exemptions.

The following Development or Redevelopment projects are exempt from the requirements of this chapter:

1. Any Development or Redevelopment projects that creates, adds or replaces less than five hundred (500) square feet of impervious surface area;

2. Any Development or Redevelopment projects involving emergency construction activities required to immediately protect public health and safety;

3. Any Development or Redevelopment projects involving the grinding/overlaying, replacement, or restriping of existing permitted parking lots;

4. Any Development or Redevelopment projects where land disturbing activities result in the replacement of fifty percent (50%) or less of an existing building, structure or impervious surface area;

5. Any Development or Redevelopment projects that are technically infeasible pursuant to Subsection 18.74.040.B and comply with Subsection 18.74.050.B; or

6. Any Development or Redevelopment projects that do not require a building permit. (ORD-25-0019 § 1(Exh. A), 2025)

18.74.040 LID plan review.

A. Compliance with the LID standards of this chapter shall be demonstrated through a LID plan review. Permit applicant shall be required to submit a LID plan for review to the Building Official. The LID plan shall demonstrate how the project will meet the standards and requirements of this chapter and of the LID Best Management Practices Manual. A submitted LID plan shall indicate compliance with the following standards:

1. Stormwater runoff will be infiltrated, captured and reused, evapotranspired, and/or treated

onsite through stormwater best management practices allowed in the LID Best Management Practices Manual.

2. The onsite stormwater management techniques must be properly sized, at a minimum, to infiltrate, evapotranspire, and/or store for use without any storm water runoff leaving the site to the maximum extent feasible, for at least the volume of water produced by a storm event that results from:

a. The volume of runoff produced from a three-quarter (0.75) inch storm event; or

b. The eighty-fifth (85^{th}) percentile twenty-four (24) hour runoff event determined as the maximized capture stormwater volume for the area using a forty-eight (48) to seventy-two (72) hour draw down time, from the formula recommended in latest edition of the Urban Runoff Quality Management, WEF Manual of Practice No. 23/ ASCE Manual of Practice No. 87; or

c. The volume of annual runoff based on unit basin storage water quality volume, to achieve eighty percent (80%) or more volume treatment by the method recommended in the latest edition of the California Stormwater Best Management Practices Handbook - Industrial/Commercial.

B. When the onsite LID requirements are technically infeasible, the infeasibility shall be demonstrated in the submitted LID plan and shall be reviewed in consultation with the Building Official. The technical infeasibility may result from conditions that may include, but are not limited to:

1. Locations where seasonal high groundwater is within ten (10) feet of surface grade;

2. Locations within one hundred (100) feet of a groundwater well used for drinking water;

3. Brownfield Development sites or other locations where pollutant mobilization is a documented concern;

4. Locations with potential geotechnical hazards; or

5. Locations with impermeable soil type as indicated in applicable soils and geotechnical reports.

C. If complete onsite compliance of any type is technically infeasible, a Development or Redevelopment project shall be required to comply with, at a minimum, all applicable requirements of Chapter 8.96 in order to maximize onsite compliance. An Offsite Runoff Mitigation Fee pursuant to Subsection 18.74.050.B shall be paid to the City of Long Beach's Stormwater Pollution Abatement Fund for the offsite mitigation of all remaining runoff that cannot feasibly be managed onsite. The funding will be applied towards the construction of an offsite mitigation project(s) within the same sub-watershed that will achieve at least the same level of water quality protection as if all the runoff was retained onsite.

D. A Multi-Phased Project must design a system acceptable to satisfy these standards and requirements for the entire Site during the first phase and will implement these standards and requirements for each phase of Development or Redevelopment projects of the Site during the first phase or prior to commencement of construction of a later phase, to the extent necessary to treat the stormwater from such later phase. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.74.050 LID plan review, permit, and Offsite Runoff Mitigation fees.

A. Permit applicants who seek to engage in new Development or Redevelopment as defined in this chapter by obtaining a building permit shall pay the required plan examination and permit fees as set forth in Chapter 18.06.

B. Permit applicants who seek to engage in new Development or Redevelopment that does not fully comply with the onsite requirements outlined in the LID Best Management Practices Manual and where technical infeasibility pursuant to Section 18.74.040.B is demonstrated, or as determined reasonably infeasible by the Building Official, may be permitted to pay an Offsite Runoff Mitigation Fee in lieu of compliance with this chapter. Payment of the fee shall be made prior to the issuance of a Certificate of Occupancy, Tem-

porary Certificate of Occupancy, final inspection or construction approval for mobile home pad or pads, whichever occurs first, or at a time determined by the Building Official, in the manner and amount as set forth in the schedule of fees and charges established by City Council resolution.

C. A reduction in the Offsite Runoff Mitigation Fee will be permitted for Development and Redevelopment projects where partial onsite management of storm water runoff is provided based on the percentage of storm water that is managed on site through infiltration, evaporation, and/or capture and use as follows:

Stormwater Runoff Managed Onsite	Fee Reduction
Between 90% and 99%	75%
Between 75% and 89%	50%
Between 50% and 74%	25%

D. Any Development or Redevelopment projects that are exempted from this chapter shall have the option to voluntarily opt in and incorporate into the project the LID requirements of this chapter. In such case, the LID plan review, permit and Offsite Runoff Mitigation fees associated with the project shall be waived. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.74.060 LID Best Management Practices Manual.

A. The Building Official shall prepare, maintain, and update, as deemed necessary and appropriate, the LID Best Management Practices Manual to include LID standards and practices and standards for stormwater pollution mitigation. The LID Best Management Practices Manual shall also include technical feasibility and implementation parameters, alternative compliance for technical infeasibility, as well as other rules, requirements and procedures as the City deems necessary, for implementing the provisions of this chapter.

B. The Building Official shall develop, as deemed necessary and appropriate, in cooperation with other City departments and stakeholders, informational bulletins, training manuals and educational materials to assist in the implementation of the LID requirements. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.75 GRADING, EXCAVATIONS AND FILLS

18.75.010 General.

A. Scope. The provisions of this chapter apply to grading, excavation and earthwork construction, including fills and embankments. Where conflicts occur between the technical requirements of this chapter and the soils or geotechnical report, the soils or geotechnical report shall govern.

B. Permits required. Except as exempted in Section 18.04.020, no grading shall be performed without first having obtained a permit as required by Section 18.04.010 therefore from the Building Official.

C. Submittal documents. The provisions of Chapter 18.05 shall apply to the submittal of grading construction documents, including soils and geotechnical reports and any other pertinent technical reports where the Building Official determines that the nature of the work applied for is such that a report is necessary.

D. Inspection. Inspections shall be governed by Chapter 18.07.

E. Flood hazard areas. Unless the applicant has submitted an engineering analysis, prepared in accordance with standard engineering practice by a registered design professional, that demonstrates the proposed work will not result in any increase in the level of the base flood, grading, excavation and earthwork construction, including fills and embankments, shall not be permitted in floodways that are in flood hazard areas established in Section 1612.3 of the California Building Code adopted in Chapter 18.40, Section R306 of the California Residential Code adopted in Chapter 18.41, or in flood hazard areas where design flood elevations are specified but floodways have not been designated.

F. Consent of adjacent property owner. Whenever any excavation or fill requires entry onto adjacent property for any reason, the permit applicant shall obtain the written consent of the adjacent property owner or the owner's authorized representative, and shall file a copy of said consent with the Building Official before the commencement of such grading work.

In the event contours on adjacent properties are permanently changed, structures or drainage devices are added or modified, and/or the work done requires a grading permit under Section 18.04.010, a separate permit shall be required for each such affected adjoining property in addition to the consent letter. Furthermore, the adjacent property owner shall acknowledge his or her consent on plans showing such work. The consent letter will not be required if such grading permit is taken out by the adjacent property owner.

G. Safety precaution during grading. If at any stage of work on an excavation or fill the Building Official determines that further work as authorized by an existing permit is likely to endanger any property or public way, the Building Official may require as a condition to allow the work to continue that plans for such work be amended to include adequate safety precautions. Safety precautions may include, but shall not be limited to, specifying a flatter exposed slope or construction of additional drainage facilities, berms, terracing, compaction, cribbing, retaining walls or buttress fills, slough walls, desilting basins, check dams, benching wire mesh and shotcrete, rock fences revetment or diversion walls.

No person shall excavate or fill so as to cause falling rocks, soil or debris in any form to fall, roll, slide or flow onto adjoining properties. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.75.020 Definitions.

For the purposes of this chapter, the terms, phrases and words listed in this section and their derivatives shall have the indicated meanings.

"Bench". A relatively level step excavated into earth material on which fill is to be placed.

"Compaction". The densification of a fill by mechanical means.

"Cut." See "excavation".

"Down drain". A device for collecting water from a swale or ditch located on or above a slope, and safely delivering it to an approved drainage facility.

"Erosion". The wearing away of the ground surface as a result of the movement of wind, water or ice.

"Excavation". The removal of earth material by artificial means, also referred to as a cut.

"Fill". Deposition of earth materials by artificial means.

"Grade". The vertical location of the ground surface.

"Grade, existing". The grade prior to grading.

"Grade, finished". The grade of the site at the conclusion of all grading efforts.

"Grading". An excavation or fill or combination thereof.

"Key". A compacted fill placed in a trench excavated in earth material beneath the toe of a slope.

"Slope". An inclined surface, the inclination of which is expressed as a ratio of horizontal distance to vertical distance.

"Terrace". A relatively level step constructed in the face of a graded slope for drainage and maintenance purposes. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.75.030 Grading bonds in hazardous situations required.

The Building Official may require a grading permit surety bond in such form and amounts as may be deemed necessary to assure that the grading work, if not completed in accordance with the approved plans and specifications, will be corrected to eliminate hazardous conditions as determined by the Building Official. The condition of such bond shall be that the permit applicant will perform the work authorized by the grading permit issued pursuant to this title in a good and

workmanlike manner and to the satisfaction of the Building Official. When a grading permit surety bond is required, it shall comply with provisions Section 2.84.040 and this chapter.

A. Surety bond. Before a permit is issued for grading with excavation or fill exceeding five hundred (500) cubic yards and/or that is potentially hazardous, as determined by the Building Official, the owner of the property shall file with the Building Official a bond for the benefit of the City. The bond shall be executed by the owner and a corporate surety authorized to do business in this state as a surety in an amount sufficient to cover the entire project.

EXCEPTION: Upon application by the owner, the Building Official may waive this requirement if:

1. The grading work performed is in compliance with an order issued by the Building Official;

2. The grading work performed is limited in scope and area, for example underground tank removal, soil mitigation, etc.; or

3. The permit applicant can substantiate, to the satisfaction of the Building Official, that the work under a grading permit will be fully executed.

B. Cash bond. In lieu of a surety bond, the owner may file a cash bond with the Building Official on the same terms and conditions and in an amount equal to that which would be required in the surety bond. The deposit may be in the form of negotiable United States securities in lieu of cash.

C. Application of bond to adjacent property. Where grading is required on property adjacent to the grading site under permit in order to complete a project satisfactorily, the owner of such adjacent property need not provide an additional grading bond if the original bond is of sufficient amount to include such additional grading.

D. Conditions of the bond. Every bond shall be conditioned such that the owner shall:

1. Comply with all applicable provisions of this title and all other ordinances of the City, or laws and statutes of the State.

2. Comply with all the terms and conditions of the grading permit to the satisfaction of the Building Official.

3. Complete all the work described by the permit, and the plans and specifications relating thereto, within the time limit specified in the permit. Upon application by the permit applicant, the Building Official may, for sufficient cause, extend the time specified in the permit pursuant to Section 18.03.050, but no such extension shall release any surety on the bond.

4. Install temporary erosion control devices when required to do so by the provisions of this chapter.

E. Period and termination of bond. The term of each bond shall begin on the date of filing and shall remain in effect until the work is completed to the satisfaction of the Building Official or until replaced by a new bond in the event of a change of ownership. In the event of failure to complete the work and/or failure to comply with all the conditions and terms of the permit, the Building Official may order some or all of the work to be completed to correct any hazardous conditions. The surety executing such bond, or such deposit, shall continue to be firmly bound under a continuing obligation for the payment of all necessary costs and expenses that may be incurred or expended by the City in causing any and all of such required work to be done and that said surety or the depositor assents to any lawful extension of time within which to construct and complete such work. Such costs shall include an amount equal to the cost to the City of administering the contract and supervising the work required. In the case of a cash bond, the deposit, or any unused portion thereof, shall be refunded to the depositor upon completion of the work to the satisfaction of the Building Official. The Building Official may release or exonerate the bond under appropriate conditions when the public health and welfare is not jeopardized.

F. Expiration of bond. When the bond expires based on terms placed on the bond by the surety executing the bond, the grading permit shall be suspended until a new bond is obtained. Where

a new bond is not obtained within ninety (90) days of the expiration of the original bond, the grading permit shall expire.

G. New ownership. In the event of change of ownership during grading, the new owner shall secure a new grading permit and post a new bond to ensure completion of the grading.

H. Amount of bond. The amount for the bond shall be set at the discretion of the Building Official, considering such factors as the size of the site, the amount of earth material in either excavation or fill, drainage requirements, and other protective devices as needed to secure the safety of the site.

I. Installment refunds and reduction of bond amount. When a substantial portion of the required grading work has been completed to the satisfaction of the Building Official, and when the completion of the remaining grading work, site development or planting is delayed, the Building Official may accept the completed portion of the grading work and consent to the proportionate reduction of the bond to an amount estimated to be adequate to ensure completion of the grading work, site development or planting remaining to be performed. Only one such reduction shall be considered for each bond posted. Any approval of a reduction to the bond amount will require the property owner to file with the Building Official a rider updating the original bond or a new bond for the reduced amount.

J. Entry upon premises. The Building Official, the surety company, or their duly authorized representative, shall have access to the premises described in the permit for the purpose of inspecting the progress of the work.

In the event of default in the performance of any terms or conditions of the permit, the surety or any person employed or engaged in his or her behalf shall have the right to go upon the premises to complete the required work, including the installation of temporary erosion control devices.

Should the permittee or the surety fail to perform the work described by the permit and the plans and specifications relating thereto or required by any applicable law, and it is determined by the Building Official that the public health, safety or general welfare is endangered by such failure, the Building Official may enter upon the premises to perform all or any part of such work, including the installation of temporary erosion control devices.

It shall be unlawful for the owner or any other person to interfere with the ingress and egress from such premises of any authorized representative or agent of any surety company or the City engaged in the work ordered by the Building Official. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.75.040 Excavations.

The slope of cut surfaces shall be no steeper than is safe for the intended use, and shall be no steeper than two (2) units horizontal to one (1) unit vertical (50-percent slope) unless the owner or authorized agent furnishes a geotechnical report justifying a steeper slope.

EXCEPTIONS:

1. A cut surface shall be permitted to be at a slope of 1.5 units horizontal to one (1) unit vertical (67-percent slope) provided that all of the following are met:

a. It is not intended to support structures or surcharges.

b. It is adequately protected against erosion.

c. It is no more than eight (8) feet (2,438 mm) in height.

d. Ground water is not encountered.

e. It is approved by the Building Official.

2. A cut surface in bedrock shall be permitted to be at a slope of one (1) unit horizontal to one (1) unit vertical (100-percent slope).

This section shall not be construed to waive the requirements of the General Safety Orders of the California Department of Industrial Relations, nor the provisions of Section 832 of the California Civil Code concerning the rights of

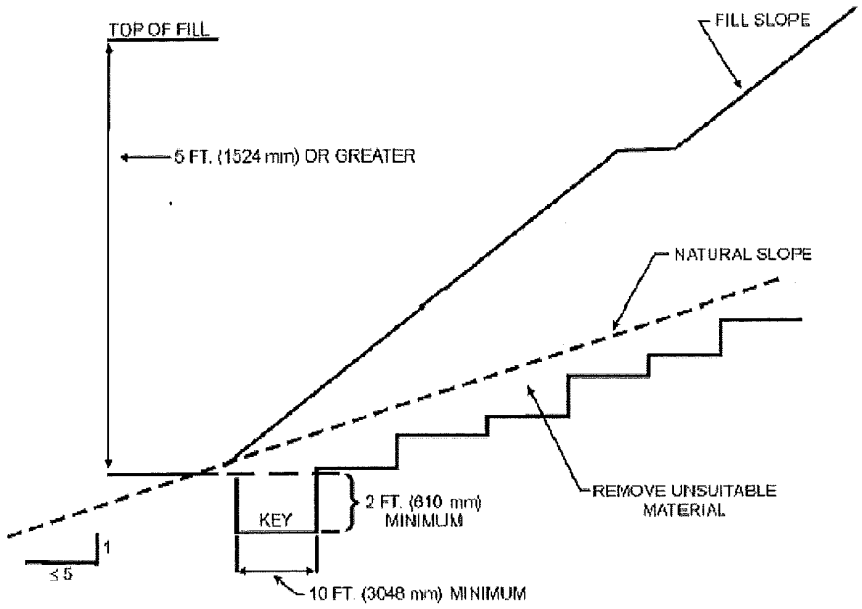
coterminous owners as to excavations. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.75.050 Fills.

A. General. Unless otherwise recommended in the geotechnical report, fills shall comply with the provisions of this section.

B. Surface preparation. The ground surface shall be prepared to receive fill by removing vegetation, topsoil and other unsuitable materials, and scarifying the ground to provide a bond with the fill material.

C. Benching. Where existing grade is at a slope steeper than five (5) units horizontal to one (1) unit vertical (20-percent slope) and the depth of the fill exceeds five feet (5') benching shall be provided in accordance with Figure 18.75.050. A key shall be provided which is at least ten feet (10') in width and two feet (2') in depth.



For SI: 1 foot = 304.8 mm.

FIGURE 18.75.050
BENCHING DETAILS

D. Fill material. Fill material shall not include organic, frozen or other deleterious materials. No rock or similar irreducible material greater than twelve inches (12") in any dimension shall be included in fills.

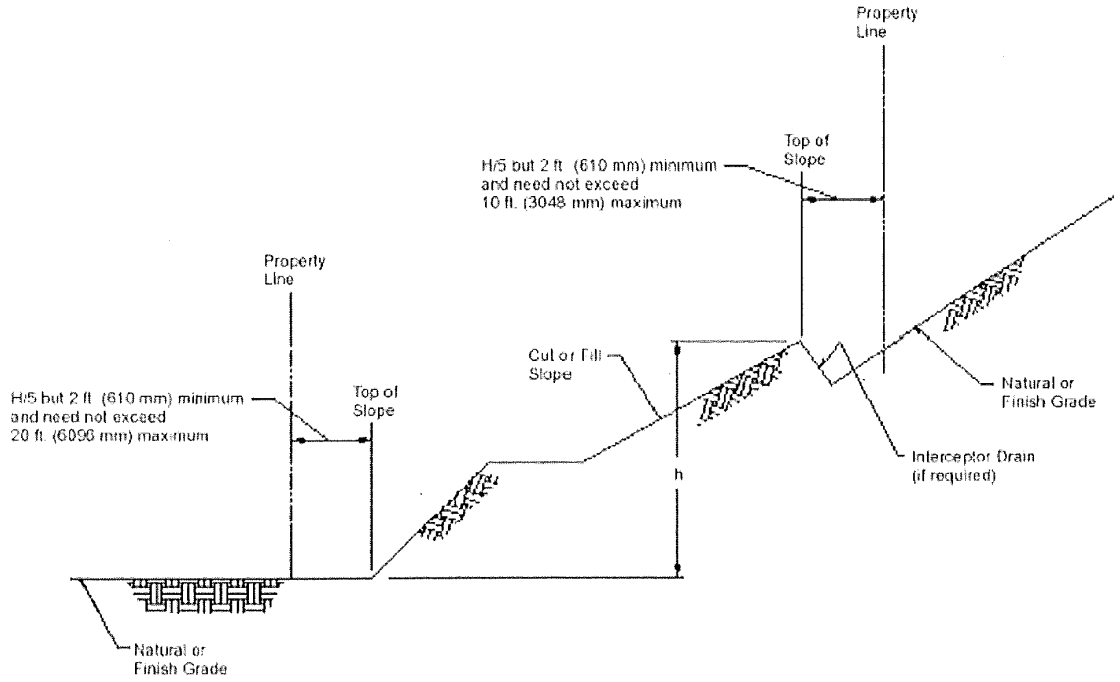
E. Compaction. All fill material shall be compacted to ninety percent (90%) of maximum density as determined by ASTM D 1557, Modified Proctor, in lifts not exceeding twelve inches (12") in depth. Where cohesionless soil having less than fifteen percent (15%) finer than 0.005 millimeter is used for fill, it shall be compacted to a minimum of ninety-five percent (95%) relative compaction based on maximum dry density. Every fill shall be tested for relative compaction by a soil testing agency approved by the Building Official. A compaction report including a Certificate of Compliance setting forth densities so determined shall be submitted to the Building Official before approval of any fill is given.

F. Maximum slope. The slope of fill surfaces shall be no steeper than is safe for the intended use. Fill slopes steeper than two (2) units horizontal to one (1) unit vertical (50 percent slope) shall be justified by a geotechnical report or engineering

data. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.75.060 Setbacks.

A. General. Cut and fill slopes shall be set back from the property lines in accordance with this section. Setback dimensions shall be measured perpendicular to the property line and shall be as shown in Figure 18.75.060, unless substantiating data is submitted justifying reduced setbacks.



For SI: 1 foot = 304.8 mm.

FIGURE 18.75.060
DRAINAGE DIMENSIONS

B. Top of slope. The setback at the top of a cut slope shall not be less than that shown in Figure 18.75.060, or than is required to accommodate any required interceptor drains, whichever is greater.

C. Slope protection. Where required to protect adjacent properties at the toe of a slope from adverse effects of the grading, additional protection, approved by the Building Official, shall be included. Such protection may include but shall not be limited to:

1. Setbacks greater than those required by Figure 18.75.060.

2. Provisions for retaining walls or similar construction.

3. Erosion protection of the fill slopes.

4. Provisions for the control of surface waters. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.75.070 Drainage and terracing.

A. General. Unless otherwise recommended by a registered design professional, drainage facilities and terracing shall be provided in accordance with the requirements of this section.

EXCEPTION: Drainage facilities and terracing need not be provided where the ground slope is not steeper than three (3) unit horizontal to one (1) unit vertical (33-percent slope).

B. Terraces. Terraces at least six feet (6') in width shall be established at not more than thirty foot (30') vertical intervals on all cut or fill slopes to control surface drainage and debris. Suitable access shall be provided to allow for cleaning and maintenance.

Where more than two (2) terraces are required, one (1) terrace, located at approximately mid-height, shall be at least twelve feet (12') in width.

Swales or ditches shall be provided on terraces. They shall have a minimum gradient of twenty (20) unit horizontal to one (1) unit vertical (5%/five percent slope) and shall be paved with concrete not less than three inches (3") in thickness, or with other materials suitable to the application. They shall have a minimum depth of twelve inches (12") and a minimum width of five feet (5').

A single run of swale or ditch shall not collect runoff from a tributary area exceeding thirteen thousand and five hundred (13,500) square feet (projected) without discharging into a down drain.

C. Interceptor drains. Interceptor drains shall be installed along the top of cut slopes receiving drainage from a tributary width greater than forty feet (40'), measured horizontally. They shall have a minimum depth of one foot (1') and a minimum width of three feet (3'). The slope shall be approved by the Building Official, but shall not be less than fifty (50) unit horizontal to one (1) unit vertical (2%/two percent slope). The drain shall be paved with concrete not less than three inches (3") in thickness, or by other materials suitable to the application. Discharge from the drain shall be accomplished in a manner to prevent erosion and shall be approved by the Building Official.

D. Drainage across property lines. Drainage across property lines shall not be permitted except for drainage that does not exceed that which existed prior to grading. Excess or concentrated drainage shall be contained on site or directed to an approved drainage facility. Erosion of the ground in the area of discharge shall be prevented by installation of nonerosive down drains or other devices.

E. Site drainage. All pads with cut or fill shall slope a minimum of two percent (2%) to an approved drainage device or to a public street. Where used, the drainage device shall be an adequately designed system of catch basins and drain lines that conducts the water to a public street.

EXCEPTION: Where the slope of the underlying natural ground does not exceed three percent (3%) and the compacted fill is less than three feet (3') in depth, the slope of the pad may be reduced to one percent (1%).

F. Drainage around buildings. On all building sites, acceptable drainage devices shall be installed to conduct water around buildings whenever the distance from the building to the top of any slope is less than five feet (5'). Where used, the drainage device shall be an adequately designed system of catch basins and drain lines that conducts the water to a public street.

G. Maintenance of drainage. Drainage in conformance with the provisions of this chapter shall be maintained during and subsequent to construction. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.75.080 Erosion control.

A. General. The faces of cut and fill slopes shall be prepared and maintained to control erosion. This control shall be permitted to consist of effective planting.

EXCEPTION: Erosion control measures need not be provided on cut slopes not subject to erosion due to the erosion-resistant character of the materials.

Erosion control for the slopes shall be installed as soon as practicable and prior to calling for final inspection.

B. Other devices. Where necessary, check dams, cribbing, riprap or other devices or methods shall be employed to control erosion and provide safety. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.75.090 Referenced standards.

ASTM D1557-12E1 Test Method for Laboratory Compaction Characteristics of Soil Using Modified Effort [56,000 ft-lb/ft^3 (2,700kN-m/m^3)]. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.76 STREAMLINED PERMITTING PROCESS FOR ELECTRIC VEHICLE CHARGING STATIONS AND HYDROGEN-FUELING STATIONS*

18.76.010 General.

A. Purpose. The purpose of this chapter is to promote and encourage the installation and use of electric vehicle charging stations and hydrogen-fueling stations by removing obstacles to, and minimizing the costs of, permitting for charging stations so long as this action does not supersede the Building Official's authority to identify and address higher priority life-safety situations. Consistent with Sections 65850.7 and 65850.71 of the California Government Code, this chapter creates an expedited and streamlined permitting process for the installation of electric vehicle charging stations and hydrogen-fueling stations.

B. Permits required. Electric vehicle charging stations or hydrogen-fueling stations shall not be installed or used without first having obtained a permit as required by Section 18.04.010.

C. Submittal documents. Submittal documents shall be governed by Chapter 18.05, except as provided in Section 18.76.030.

D. Fee. Fees for electric vehicle charging stations and hydrogen-fueling stations shall be governed by Chapter 18.06.

E. Inspection. Inspections shall be governed by Chapter 18.07.

F. Effective date. This chapter shall apply to all projects for the installation and use of electric vehicle charging stations submitted on or after September 30, 2016, or to all projects for the installation and use of hydrogen-fueling stations submitted on or after September 30, 2025. The applicable time period required by Section 65850.71 of the California Government Code shall apply to all projects for the installation and use of electric vehicle charging stations submitted on or after January 1, 2022. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.76.020 Definitions.

Unless otherwise expressly stated, the following words and terms shall, for the purpose of this chapter, have the meanings shown in this section. Where the words or terms are not defined in this section, Chapter 18.02 shall apply.

"Electronic submittal" means the utilization of one or more of the following:

1. E-mail;
2. Internet; or
3. Facsimile.

"Electrical vehicle charging station" or "charging station" or "EVCS" means an electric vehicle charging station as defined by Section 202 of Chapter 2 of the California Green Building Standards Code as adopted in Chapter 18.47 that is designed and built in compliance with Article 625 of the California Electrical Code adopted in Chapter 18.42 and delivers electricity from a source outside an electric vehicle into a plug-in electric vehicle.

"Hydrogen fueling station" means the equipment used to store and dispense hydrogen fuel to vehicles according to industry codes and stan-

*Editor's note—ORD-25-0019 § 1(Exh. A), adopted Nov. 11, 2025, amended the title of Ch. 18.76 to read as herein set out. The former Ch. 18.76 was entitled "Streamlined Permitting Process For Electric Vehicle Charging Stations."

dards that is open to the public. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.76.030 Permit application and submittal.

A. Application for permit. An application for a permit shall be governed by Section 18.04.030.

B. Submittal. Application for a permit and supporting documents may be submitted to the Building Official in person, by mail, or by electronic submittal together with all required fees.

C. Electronic signature. The Building Official is authorized to accept an electronic signature on all forms, applications, and other documents in lieu of a wet signature by an applicant.

D. Action on application. An application for a permit and supporting documents that satisfies the information requirements in the checklist required by Subsection 18.76.050.A, as determined by the Building Official, shall be deemed complete.

Upon confirmation by the Building Official of the application for a permit and supporting documents being complete and meeting the requirements of the checklist, and consistent with this chapter, the Building Official shall administratively approve the application for a permit and supporting documents and issue the required permit.

Upon receipt of an incomplete application for a permit or supporting documents, the Building Official shall issue a written correction notice detailing all deficiencies in the application for a permit or supporting documents and any additional information required to be eligible for expedited and streamlined permitting in this chapter.

E. Technical review. It is the intent of this chapter to encourage the installation of EVCS and hydrogen-fueling stations by removing obstacles to permitting for EVCS and hydrogen-fueling stations provided the action does not supersede the Building Official's authority to address higher priority life-safety situations. If the Building Official makes a finding based upon substantial evidence that the EVCS or the hydrogen-fueling stations(s) could have a specific adverse impact upon the public health or safety, the Building Official may require the applicant to apply for a use permit and may not be eligible for expedited and streamlined permitting in this chapter.

F. Validity of permit. The validity of permit shall be governed by Section 18.04.050. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.76.040 Inspection.

Inspection by the Building Official and/or Fire Code Official shall conform to the requirements of Chapter 18.07. A consolidated inspection by the Building Official and Fire Code Official may be performed at their discretion. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

18.76.050 Permitting documentation.

A. Checklist. The Building Official is hereby authorized and directed to develop and adopt checklists of all requirements with which EVCS and hydrogen-fueling stations shall comply to be eligible for expedited and streamlined permitting in this chapter. The checklists shall substantially conform, as deemed necessary and appropriate by the Building Official, to the most current versions of the "Zero-Emission Vehicles in California: Community Readiness Guidebook" and "Hydrogen Station Permitting Guidebook" published by the California Governor's Office of Planning and Research. The Building Official is authorized to modify the checklists from time to time due to unique climactic, geological, seismological, topographical or environmental conditions.

B. Other documents. The Building Official shall prepare, maintain, and update, as deemed necessary and appropriate, in cooperation with other City departments and stakeholders, informational bulletins, training manuals and educational materials to assist in the implementation of this chapter.

C. Publicly accessible. The Building Official shall publish the checklist and other documents on a publicly accessible internet website, where possible, or other publicly accessible location. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

CHAPTER 18.77 STREAMLINED PERMITTING PROCESS FOR SOLAR ENERGY SYSTEMS AND ENERGY STORAGE SYSTEMS

18.77.010 General.

A. Purpose. The purpose of this chapter is to promote and encourage the installation and use of solar energy systems and energy storage systems by limiting obstacles to their use and minimizing the permitting costs of such system. Consistent with Sections 65850.5, 65850.52, 65850.55, 65850.8, and 66015 of the California Government Code, this chapter creates an expedited permitting process for solar energy systems and energy storage systems.

B. Permits required. Solar energy systems and energy storage systems shall not be installed or used without first having obtained a permit as required by Section 18.04.010.

C. Submittal documents. Submittal documents shall be governed by Chapter 18.05, except as provided in Section 18.77.030.

D. Fee. Fees for solar energy systems and energy storage systems shall be governed by Subsections 18.06.010.A or 18.06.020.A in accordance with Sections 65850.55 and 66015 of the California Government Code.

E. Inspection. Inspections shall be governed by Chapter 18.07, except as provided in Section 18.77.040.

F. Effective date. This chapter shall apply to projects for the installation and use of solar energy systems submitted on or after September 30, 2015, and energy storage systems submitted on or after September 30, 2023. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.77.020 Definitions.

Unless otherwise expressly stated, the following words and terms shall for the purpose of this chapter have the meanings shown in this section. Where the words or terms are not defined in this section, Chapter 18.02 shall apply.

"Electronic submittal" means the utilization of one or more of the following:

1. E-mail;
2. Internet; or
3. Facsimile.

"Energy storage system" or "ESS" has the same meaning as set forth in the California Residential Code, California Electrical Code, and California Fire Code as adopted in Chapters 18.41, 18.42, and 18.48.

"Residential energy storage system" has the same meaning as set forth in Paragraph (2) of Subdivision (a) of Section 65850.52 of the California Government Code.

"Residential solar energy system" has the same meaning as set forth in Paragraph (3) of Subdivision (a) of Section 65850.52 of the California Government Code.

"Solar energy system" has the same meaning as set forth in the California Building Code, California Residential Code, California Electrical Code, and California Fire Code as adopted in Chapters 18.40, 18.41, 18.42, and 18.48. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.77.030 Permit application and submittal.

A. Application for permit. An application for a permit shall be governed by Section 18.04.030.

B. Submittal. Application for a permit and supporting documents may be submitted to the Building Official in person, by mail, or by electronic submittal together with all required fees.

C. Electronic signature. The Building Official is authorized to accept an electronic signature on all forms, applications, and other documents in lieu of a wet signature by an applicant.

D. Action on application. An application for a permit and supporting documents that satisfies

the information requirements in the checklist and standard plan, as determined by the Building Official, shall be deemed complete.

Upon confirmation by the Building Official of the application for a permit and supporting documents being complete and meeting the requirements of the checklist and standard plan, and consistent with this chapter, the Building Official shall administratively approve the application for a permit and support documents and issue the required permit.

Upon receipt of an incomplete application for a permit or supporting documents, the Building Official shall issue a written correction notice detailing all deficiencies in the application for a permit or supporting documents and any additional information required to be eligible for expedited permitting in this chapter.

E. Validity of permit. The validity of permit shall be governed by Section 18.04.050. Such permit does not authorize an applicant to connect the solar energy system or energy storage system to the local utility provider's electricity grid. The applicant is responsible for obtaining such approval or permission from the local utility provider. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.77.040 Inspection.

A. Number of inspections. Notwithstanding Chapter 18.07 to the contrary, solar energy systems eligible for expedited permitting in this chapter shall only be required to have one inspection by the Building Official and/or Fire Code Official. If the solar energy system fails inspection, a subsequent inspection by the Building Official and/or Fire Code Official is authorized and shall conform to the requirements of Chapter 18.07.

B. Consolidated inspection. A consolidated inspection by the Building Official and Fire Code Official may be performed at their discretion. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

18.77.050 Permitting documentation.

A. Checklist and standard plan. The Building Official is hereby authorized and directed to develop and adopt a checklist and standard plan of all requirements with which solar energy systems or energy storage system shall comply to be eligible for expedited permitting in this chapter. The checklist and standard plan shall substantially conform, as deemed necessary and appropriate by the Building Official, to the checklists and standard plans contained in the most current version of the California Solar Permitting Guidebook as adopted by the Governor's Office of Planning and Research ("Guidebook") or other available resources developed by state agency or department, where appropriate. The Building Official is authorized to modify the checklist and standard plan found in the Guidebook or other available resources due to unique climactic, geological, seismological, or topographical conditions.

B. Other documents. The Building Official shall prepare, maintain, and update. as deemed necessary and appropriate, in cooperation with other City departments and stakeholders, informational bulletins, training manuals and educational materials to assist ln the implementation of this chapter.

C. Publicly accessible. The Building Official shall publish the checklist, standard plan, and other documents on a publicly accessible internet website, where possible, or other publicly accessible location. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019)

CHAPTER 18.78 CONSTRUCTION IN THE VICINITY OF ABANDONED OIL WELLS*

18.78.010 Applicability.

All construction activities on a privately-owned parcel or tract containing an abandoned oil/gas

***Editor's note**—ORD-25-0019 § 1(Exh. A), adopted Nov. 11, 2025, amended Ch. 18.78 in its entirety to read as herein set out. Former Ch. 18.78, §§ 18.78.010—18.78.270, pertained to similar subject matter and derived from: ORD-22-0033 § 1(Exh. A), 2022; and ORD-21-0018 § 1, 2021.

well or wells shall meet the requirements of this Chapter, and Section 5706.3 of the California Fire Code. Construction activities on a privately-owned parcel or tract with active or idle wells shall comply with Chapter 18.48 of this Code. Construction projects involving assembly uses, caregiving facilities/hospitals, or schools such as those with an "A," "I," or "E" occupancy classification, and all "high rise" structures as defined by the California Building Code shall meet the current CALGEM standards, and Section 5706.3.1.3.1 of the California Fire Code. (ORD-25-0019 § 1(Exh. A), 2025)

18.78.020 Exemptions.

Additions or Modifications. Additions that add less than fifty (50) percent of the existing floor area or modifications to existing structures that alter less than fifty (50) percent of the existing floor area of that structure, and which maintain the "Separation Rule" as defined herein are exempt from the provisions of this Chapter. (ORD-25-0019 § 1(Exh. A), 2025)

18.78.030 Definitions.

Unless otherwise expressly stated herein, the following words and terms shall, for the purpose of this Chapter, have the meaning set forth in this Section. Where the words or terms are not defined in this Section, Chapter 18.02 of this Code shall apply.

A. "Applicant" means a permit applicant, developer, owner, permittee, operator, or a representative of the owner who is applying for a building, grading, or any type of permit to construct in the vicinity of an abandoned oil/gas well(s).

B. "Close Vicinity" means a well located within the Separation Rule of an abandoned well.

C. "Construction Activity" means construction activity including, but not limited to, grading, paving, and/or structure development, or any electrical installations.

D. "California Geologic Energy Management Division" or "CALGEM" means the State of California agency, or any successor agency, responsible for overseeing the drilling, operation, maintenance, plugging or abandonment of oil, natural gas, or geothermal wells.

E. "Operator" means any person drilling, maintaining, operating, pumping, or in control of any well.

F. "Permittee" means any person or entity seeking to obtain a permit from the City.

G. "Project Boundary" means the entire proposed construction site, parcel or tract, including the entire area of each and every site, parcel, or tract involved.

H. "Qualified Professional" means a petroleum engineer currently registered in the State of California and possessing experience in oil/gas well abandonment.

I. "Separation Rule" means providing ten (10) feet of separation on two sides of the well, fifty (50) feet of separation on the third side of the well, and the remaining side of the well open, with an unobstructed vertical clearance for well service and rig access.

A well will meet the Separation Rule if it meets the above definition or if the applicant can demonstrate the proposed project will maintain appropriate and safe standard/conventional rig access to the well. (ORD-25-0019 § 1(Exh. A), 2025)

18.78.040 Prerequisites.

Applicants shall complete the following prerequisite items prior to applying for a building, grading or any type of permit for construction within the project boundary:

A. Identify all active, idle, or abandoned wells within the project boundary and all off-site active, idle, or abandoned wells within one hundred (100) feet of the proposed onsite structure(s).

B. Construction Site Well Review. Complete and submit a Construction Site Well Review (CSWR) Application to CALGEM.

C. Well Safety Evaluation. Prepare a Well Safety Evaluation per Section 18.78.050. (ORD-25-0019 § 1(Exh. A), 2025)

18.78.050 Well Safety Evaluation Submittal requirements.

A well safety evaluation report shall be submitted for wells within the project boundary and

off-site wells within one hundred (100) feet of any proposed structure(s). The report shall include the following:

A. Well Exhibit. A Well Exhibit shall be submitted for review. The Well Exhibit shall contain all of the following elements:

1. A site plan that illustrates all active, idle, or abandoned wells and the location and function of all existing and proposed development, including, but not limited to, paved surfaces, auxiliary structures, and occupied structures within the property boundary. Off-site wells within one hundred (100) feet of a proposed structure shall also be shown on the site plan;

2. For wells within the property boundary:

a. Diagram and description of any wells' drill rig accessibility within twenty-four (24) hours of any emergency. Compliance with the Separation Rule shall be clearly shown. If inaccessible within twenty-four (24) hours, a detailed written plan to provide access, including an approximate minimum time when access will be provided, shall also be required. (ORD-25-0019 § 1(Exh. A), 2025)

18.78.060 Well abandonment.

Wells within one hundred (100) feet of the proposed structures, which are not abandoned to any approved current or prior CALGEM standard, shall be abandoned to the current CALGEM standard. The Building Official shall have the authority to approve the well(s) "as-is", approve alternative abandonment methods, or impose appropriate development conditions in accordance with Section 18.03.060. (ORD-25-0019 § 1(Exh. A), 2025)

18.78.070 Site clean-up.

Any potential site cleanup shall be under the direction of City of Long Beach Health Officer or designee. Grading and compaction around the well head shall be per the grading permit requirements of the City. (ORD-25-0019 § 1(Exh. A), 2025)

18.78.080 Methane mitigation.

Building construction projects shall be mitigated in accordance with the requirements of Chapter 18.79 of this Code. (ORD-25-0019 § 1(Exh. A), 2025)

18.78.090 Indemnity Agreement.

Upon project plan approval, the Applicant shall fully execute and record an "Indemnification for Construction in the Vicinity of Abandoned Oil Well(s)" in a format required by the City and approved by the City Attorney's Office for any wells that do not meet the current (at the time of property development) CALGEM standards for abandonment and/or maintenance accessibility or building separations. (ORD-25-0019 § 1(Exh. A), 2025)

18.78.100 Declaration of Covenant.

Prior to final approval of building, grading or any permit for development within the close proximity to, or over a former oil/gas well, the permittee/applicant shall record a Declaration of Covenant, in a form subject to the review and approval of the City Attorney, putting future owners and occupants on notice of the following: the existence of abandoned oil wells on the site; an acknowledgment that CALGEM may order the re-abandonment of any well should it leak in the future; an acknowledgment that CALGEM does not recommend building over wells; and releasing and indemnifying the City and its various employees and agents for issuing project permits or granting any approvals. The Covenant shall run with the land, apply to future owners or successors in interest, and may only be released by the City in writing. The Declaration of Covenant shall be recorded with the County Recorder's Office prior to the issuance of any permits. (ORD-25-0019 § 1(Exh. A), 2025)

18.78.110 Fees.

Well Safety Evaluation review fees consisting of peer review, well head inspection, leak test inspection, and Alternate Materials and Methods of Construction fees for oil well abandonment projects shall be paid in accordance with the latest Master Fee Resolution and City Schedule of Fees. (ORD-25-0019 § 1(Exh. A), 2025)

18.78.120 Site restoration for vacated projects.

Should the developer/applicant decide to discontinue site development, all excavations for any well discoveries shall be restored to their original condition prior to well discovery disturbance. (ORD-25-0019 § 1(Exh. A), 2025)

CHAPTER 18.79 METHANE GAS MITIGATION*

18.79.010 Purpose.

This chapter sets forth the minimum requirements of the City of Long Beach for control of methane gas intrusion emanating from geologic formations. The requirements do not regulate flammable vapor that may originate in and propagate from other sources, which include, but are not limited to, ruptured hazardous material transmission lines, underground atmospheric tanks, or similar installations. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.79.020 Scope.

The provisions of this chapter shall govern methane gas mitigation systems for all buildings and structures. Additional requirements shall apply as follows:

1. Methane gas mitigation system submittal documents shall be required for any project with a methane gas mitigation system in accordance with Subsection 18.05.030.A Item 8.

2. Methane gas mitigation inspection and plans examination fees shall be required for any project with a methane gas mitigation system in accordance Sections 18.06.010 and 18.06.020.

3. Methane gas mitigation inspections shall be required for any project with a methane gas mitigation system in accordance with Section 18.07.050. A preconstruction meeting shall be scheduled with the Building Official or a duly designated representative prior to installation of the methane gas mitigation system

4. Methane gas mitigation measures shall be required for any subgrade electrical work in compliance with the requirements of Chapter 5 of the California Electrical Code occurring in all areas identified in Section 18.79.040. Exemptions noted in Section 18.79.050 shall not apply to subgrade electrical work, except where methane soil gas testing indicates that methane gas concentrations and pressures on the project site are less than those required for a Site Design Level I classification in accordance with Section 18.79.060. (ORD-25-0019 § 1(Exh. A), 2025; ORD-25-0015 § 1, 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.79.030 Definitions.

The following terms shall have the following meanings, unless otherwise clearly apparent from the context:

"Combustible soil gas" means flammable gas within soil pores.

"Development Projects" means newly constructed buildings or structures, additions to existing buildings or structures, or alterations of fifty (50) percent or greater to the existing foundations, slabs-on-grade, or raised floors of existing buildings or structures.

"Flammable Gas" means a gaseous substance capable of sustaining combustion or explosion, as defined in the California Fire Code as adopted in Chapter 18.48.

"Gas Membrane Barrier" means a manufactured membrane barrier designed to prevent the transmission of methane with a minimum dry thickness of fifteen (15) mils and a gas transmission rate (GTR) of less than forty (40) milliliters per square meter day (ml/m^2-D), when tested in accordance with the American Society for Testing and Materials D1434 standard.

"Methane Gas" means the hydrocarbon substance commonly known as "natural gas," chemical formula CH4. For the purpose of this definition, natural gas from the distribution system of a utility company is exempt and excluded from the scope of this Chapter.

"Methane Gas Detection and Alarm System" means one or more electrical devices capable of

***Editor's note—**ORD-22-0033 § 1(Exh. A), adopted Nov. 15, 2022, Ch. 18.79 in its entirety to read as herein set out. Former Ch. 18.79, §§ 18.79.010—18.79.120, pertained to similar subject matter, and derived from ORD-21-0019 § 1, 2021.

continuous monitoring for the presence of methane gas in accordance with Section 18.79.070. Alarm systems shall consist of audible and visual alarms capable of alerting occupants that a hazardous atmosphere exists.

"Methane Gas Mitigation System" means a collection of building systems designed to mitigate the accumulation of methane gas to less than hazardous levels within a structure. This includes a designed collection system of piping components located beneath a structure to vent combustible soil gas to the atmosphere; heating, ventilation, and air conditioning (HVAC) systems to introduce outdoor air into a structure to ventilate accumulated methane; and sensors and alarms to detect concentrations of methane gas, activate HVAC and/or active methane mitigation, and alert occupants to the presence of methane gas.

1. Active Methane Gas Mitigation System: The complete designed piping system originating below a building or structure and terminating above the building or structure with a motorized evacuation device to exhaust accumulated gases;

2. Passive Methane Gas Mitigation System: A non-powered piping system originating below a building and terminating outside of the building using natural air flow for venting accumulated gases.

"Qualified Professional" means a California Registered Professional Civil Engineer, Petroleum Engineer, or Geologist with experience in the design and construction of methane gas mitigation systems.

"Site Design Level" means a designated level assigned to a project site based on the concentration and pressure of methane gas detected during shallow and soil gas probe testing or as indicated in Section 18.79.060.

"Soil Gas Investigation" means a scientific investigation performed in accordance with Section 18.79.060 conducted under the direction of a Qualified Professional for the purpose of determining the locations and concentrations of combustible soil gas.

"Subslab Vent Piping" means polyvinyl chloride (PVC), high-density polyethylene (HDPE), acrylonitrile butadiene styrene (ABS), or strip composite perforated piping, or equivalent, with a minimum diameter of three (3) inches.

"Vertical Vent Risers" means cast-iron or galvanized steel piping with a minimum diameter of three (3) inches connecting subslab piping to the atmosphere. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.79.040 Applicability.

The methane gas mitigation requirements of this chapter shall be required for all development projects, unless exempted by Section 18.79.050, located in the following areas:

A. All areas overlying petroleum-bearing formations and within the limits of a petroleum reservoir's boundary, as mapped by the State Geological Energy Management Division (CALGEM, or any successor agency). Properties or parcels which partially fall into the areas described herein are fully subject to the methane gas mitigation measures required by this Chapter, for the entire property.

B. All areas three hundred (300) feet or less from any active oil or gas well, or one hundred (100) feet or less from any idle and/or abandoned oil or gas well.

C. All areas one thousand (1,000) feet or less from the refuse footprint of any existing or new landfill or disposal site.

D. Where the building official determines a significant hazard exists from methane gas intrusion at any location within the City, the Building Official is authorized to enforce the requirements of Chapter 18.79 as required to prevent a potential fire or explosion due to methane gas concentrations. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.79.050 Exemptions.

The following development projects are exempt from the provisions of this chapter:

1. Buildings or structures with permanent natural ventilation, such as but not limited to, open parking structures, carports, patio covers or similar open structures.

2. Buildings or structures with raised foundations providing adequate underfloor ventilations.

3. Alterations to existing buildings or structures where less than fifty (50) percent of the existing foundations and slabs-on-grade are replaced.

4. Newly constructed buildings or structures accessory to an existing one- or two-family dwelling that are less than fifty (50) percent of the area of the existing one- or two-family dwelling.

5. Addition to existing buildings or structures that are less than fifty (50) percent of the floor area of the existing building or structure.

6. Any development project where methane soil gas testing indicates that methane gas concentrations and pressures on the project site are less than those required for a Site Design Level I classification in accordance with Section 18.79.060. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.79.060 Methane soil gas investigation.

A. Methane soil gas testing shall be required for all development projects located within any area as indicated in Section 18.79.040. Testing shall be in accordance with the policies and criteria established by the Building Official.

Exceptions. Methane soil gas testing is not required for any of the following:

1. One- and two-family dwellings that comply with the Site Design Level I methane gas mitigation system requirements.

2. Any development project that complies with the Site Design Level III methane gas mitigation system requirements.

3. Any development project that complies with Chapter 18.78 Construction in the Vicinity of Abandoned Oil Wells and Site Design Level III methane gas mitigation system requirements.

B. Methane soil gas investigation shall classify the development project into one of the following Site Design Levels:

Level I: Concentrations of methane soil gas less than fifty-thousand (50,000) ppmv and greater than one thousand (1,000) parts per million by volume (ppmv), and measured pressure less than two (2) inches of water column (WC).

Level II: Concentrations of methane gas up to fifty thousand (50,000) ppmv, and measured pressure greater than two (2) inches of water column (WC), or concentrations of methane gas between fifty thousand (50,000) ppmv and three hundred thousand (300,000) ppmv, at all pressures.

Level III: Concentrations of methane gas greater than three hundred thousand (300,000) ppmv. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.79.070 Methane gas mitigation design requirements.

The development project shall provide a methane gas mitigation system with the required mitigation features indicated in Table 1 of this section.

TABLE 1
METHANE GAS MITIGATION SYSTEM DESIGN REQUIREMENTS

	SITE DESIGN LEVEL[b]		
MITIGATION FEATURE REQUIREMENTS[a]	**LEVEL I**	**LEVEL II**	**LEVEL III**
Methane Gas Membrane Barrier	X	X	X
Perforated Subslab Vent Piping	X	X	X
Vertical Vent Risers	X	X	X
Methane Gas Detection System (in-room and vent risers)		X	X
Methane Gas Alarm System		X	X
Control Panel		X	X
Mechanical Ventilation		X	X
Mechanical Subslab Extraction			X
Pavement Venting		X	X
Signs	X	X	X

	SITE DESIGN LEVEL[b]		
MITIGATION FEATURE REQUIREMENTS[a]	LEVEL I	LEVEL II	LEVEL III
Conduit or Cable Seal Fittings	X	X	X
Trench Dam	X	X	X

a. Methane gas mitigation features, as required in this Table, shall be designed and detailed in accordance with the policies and criteria established by the Building Official.

b. Site Design Level shall be determined by a methane soil gas investigation in accordance with Section 18.79.060.

(ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.79.080 Operation and maintenance plan.

An operation and maintenance plan shall be required for development projects with methane mitigation features provided for Site Design Levels II or III. The plan shall be prepared by a Qualified Professional.

Specification for the repair of the methane gas mitigation systems shall be provided to the property owner or authorized agent of the property owner for development projects with mitigation features provided for Site Design Level I.

A. The operation and maintenance plan shall contain the following information:

1. An emergency response procedure including, but not limited to, an outlined procedure for emergency response to methane gas intrusion, contact information for the Fire Department and other individuals critical during emergency response, and requirements for conspicuous posting of emergency contact information and emergency response procedures.

2. The locations of equipment and components of the methane gas mitigation system, including, but not limited to, the control panel, methane gas detection and alarm system components and any other related equipment or components.

3. Specification for the repair of the methane gas mitigation system.

4. Specification of the required frequency of methane gas detection and alarm system testing. The frequency of testing shall not exceed twelve (12) months.

B. The property owner or authorized agent of the property owner shall be provided with detailed operation and maintenance instructions for the methane gas mitigation system.

C. Testing records shall be maintained by the property owner for a period determined by the Building Official. Such records shall be made available to the Building Official upon request. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.79.090 Qualified professional project certification.

After completion of testing of the methane gas mitigation system and prior to final inspection, a final testing report and project certification of the methane gas mitigation system, signed by the Qualified Professional, shall be provided to the Building Official. The project certification shall be provided upon a form prescribed by the Building Official, including a written statement from the Qualified Professional indicating the structure is free from methane gas and can be safely occupied. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.79.100 Covenant and agreement.

Prior to the final inspection, the property owner shall file with the Building Official on a form approved by the City Attorney an agreement binding such property owner, heirs and assignees, to maintain and operate the methane gas mitigation system in accordance with the requirements specified on the construction documents approved by the City. Such agreement shall be recorded in the County Recorder's Office. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.79.110 Reference Standards.

ASTM D1434-82(2015)E1 - Standard Test Method for Determining Gas Permeability Characteristics of Plastic Film and Sheeting (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

18.79.120 Adoption of administrative rules.

The City Manager, or designee, is authorized and directed to promptly adopt administrative rules, which may be in the form of information bulletins, supplemental to the provisions of this chapter as necessary or appropriate to implement this chapter. The provisions of this chapter and the rules adopted by the City Manager, or designee, shall be provided to property owners, developers, potential developers, and other interested members of the public to the widest extent practical. No person shall fail to comply with any such information bulletin, rule or regulation. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022)

CHAPTER 18.99 FINDINGS

18.99.010 Purpose.

A. The provisions of this title contain certain changes, deletions, modifications and additions to the 2025 Edition of the California Building Standards Code adopted by the City. Chapters and sections of this title, including the amendments herein, are considered amendments to the California Building Standards Code and Appendices. Some of these changes are administrative in nature in that they do not constitute changes, modifications or additions to the California Building Standards Code.

B. Pursuant to Sections 17958.5 and 17958.7 of the California Health and Safety Code, the City Council has, by resolution made specific findings of fact and determinations relative to the unique climatic, geological or topographical conditions existing in Long Beach that necessitate amendment to the various applicable California Building Standards Code. A copy of said resolution shall be on file with the office of the City Clerk. (ORD-25-0019 § 1(Exh. A), 2025; ORD-22-0033 § 1(Exh. A), 2022; ORD-19-0031 § 1(Exh. A), 2019; ORD-16-0026 § 1(Exh. A), 2016)

Title 19

(RESERVED)

Title 20

SUBDIVISIONS*

Chapter 20.02 General Provisions

20.02.010 Title.
20.02.020 Purpose and intent.
20.02.030 Authority.
20.02.040 Applicability.
20.02.050 Exemptions.
20.02.060 Compliance required.
20.02.070 Violation—Building permit withheld.
20.02.080 Fees.
20.02.090 Violation—Penalty.

Chapter 20.04 Review Authority

20.04.010 Purpose and intent.
20.04.020 City Council.
20.04.030 Planning Commission.
20.04.040 Zoning Administrator.
20.04.050 Public Works Director.
20.04.060 Community Development Director.
20.04.070 Appeals authorization and jurisdiction.
20.04.080 Time to file an appeal.
20.04.090 Form of filing an appeal.
20.04.100 Time for conducting hearing of appeals.
20.04.110 Appeal Hearing—Notice.
20.04.120 Finality of appeals.
20.04.130 Appeal Findings.
20.04.140 Appeal Fees.

Chapter 20.06 Types of Maps Required

20.06.020 Parcel map.
20.06.040 Final/Tract map.
20.06.060 Lot Line Adjustment.
20.06.080 Maps Required.

***Editor's note—**ORD-23-0051 § 1(Exh. A), adopted Dec. 19, 2023, repealed the former Title 20, §§ 20.04.010—20.40.100, and enacted a new Title 20 as set out herein. The former Title 20 pertained to similar subject matter and derived from: ORD-20-0022 §§ 2, 4, 2020; ORD-07-0019 § 4 (part), 2007; Ord. C-7508 § 1, 1997; Ord. C-7500 § 1, 1997; Ord. C-7215 § 1, 1994; Ord. C-7173 § 24, 1994; Ord. C-7127 § 1, 1993; Ord. C-6952 § 1, 1991; Ord. C-6933 §§ 1, 2, 1991; Ord. C-6823 §§ 1—5, 1990; Ord. C-6686 §§ 1, 2, 4, 5, 8 (part), 1990; Ord. C-6595 §§ 2, 4, 1989; Ord. C-6231 §§ 1, 2, 1986; Ord. C-6164 § 1, 1985; Ord. C-5975 § 1 (part), 1983.

Chapter 20.08 Design Standards

20.08.010 Purpose and applicability.
20.08.015 Density, use and standards.
20.08.020 Lots.
20.08.030 Blocks—Length.
20.08.040 Blocks—Corners.
20.08.050 Freeways.
20.08.060 Street dedications.
20.08.070 Street access.
20.08.080 Private streets.
20.08.090 Cul-de-sac.
20.08.100 Service road.
20.08.110 Street Naming Requirements for Subdivisions of Land.
20.08.115 Street Name Changes for existing streets.
20.08.120 Alleys.
20.08.130 Sidewalks.
20.08.140 Bikeways.
20.08.150 Utility easements on a map.
20.08.160 Model Homes.
20.08.165 Monuments.
20.08.170 Right-of-way vacation.

Chapter 20.10 Dedication and Improvements

20.10.010 Dedication requirements for public street rights-of-way.
20.10.020 Access rights.
20.10.030 Public access to public resources.
20.10.040 Improvements—Required.
20.10.050 Subdivision map improvements—Designated.
20.10.060 Improvement plans.
20.10.070 Improvement security—Required.
20.10.080 Improvement security—Amount.
20.10.090 Improvement security—Release.
20.10.100 Supplemental improvements for drainage, sewerage, bridges, and major thoroughfares.

Chapter 20.12 Tentative Maps

20.12.010 Required.
20.12.020 Preparation.
20.12.030 Tentative Map form and contents.
20.12.035 Accompanying Data.

20.12.037 Special Studies.
20.12.040 Completeness determination required for filing.
20.12.050 Review by other City departments and agencies.
20.12.060 Staff recommendations.
20.12.070 Hearing—Time to be held.
20.12.080 Hearing—Notice.
20.12.090 Planning Commission or Zoning Administrator—Action.
20.12.100 Planning Commission or Zoning Administrator—Requirements for approval of tentative parcel and tract maps.
20.12.110 Planning Commission—Conditional approval.
20.12.120 Planning Commission or Zoning Administrator—Findings required for modifications or exceptions.
20.12.130 Planning Commission or Zoning Administrator—Disapproval.
20.12.140 Zoning Administrator—Waiver of final parcel map.
20.12.150 Tentative map withdrawal.
20.12.160 Tentative map revisions—Prior to approval.
20.12.170 Tentative map revisions—After approval.
20.12.180 Tentative map expiration.
20.12.190 Time extensions.

Chapter 20.14 Vesting Tentative Maps

20.14.010 Applicability.
20.14.020 Filing and processing.
20.14.030 Development rights.
20.14.040 Vesting Tentative Map expiration.

Chapter 20.16 Final Maps

20.16.010 Required when.
20.16.020 Content and form.
20.16.030 Filing.
20.16.040 Fee.
20.16.050 Certifications.
20.16.060 Parcel map—Approval.
20.16.070 Final/tract map—Approval.
20.16.080 The City Clerk's certificate.
20.16.090 Recording.
20.16.100 Amendments permissible with certificate of correction or certificate of compliance.

Chapter 20.18 Urban Lot Split (Parcel Map)

20.18.010 Purpose and intent.

20.18.020 Urban lot split application and procedures.
20.18.030 Review by other City departments and agencies.
20.18.040 Concurrent processing with other ministerial permits.
20.18.050 Preparation.
20.18.060 Coastal zone.
20.18.070 Urban lot split development standards.
20.18.080 Disapproval of an urban lot split.
20.18.090 Urban lot split form, contents and accompanying data.
20.18.100 Map requirements.
20.18.120 Expiration.
20.18.130 Revisions and amendments of an urban lot split.
20.18.140 County recording.
20.18.160 Urban lot split withdrawal.

Chapter 20.20 Lot Line Adjustment

20.20.001 Purpose.
20.20.005 Preparation.
20.20.010 Standards generally.
20.20.020 Application.
20.20.030 Community Development Director or Zoning Administrator action.
20.20.040 Required findings.
20.20.050 Expiration.
20.20.060 Final site plan.
20.20.070 Recording of a deed to reflect modified lot lines.

Chapter 20.22 Voluntary Lot Mergers

20.22.010 Purpose.
20.22.015 Preparation.
20.22.020 Mergers not automatic with single ownership.
20.22.025 Application.
20.22.030 Lot merger plat map requirements.
20.22.035 Accompanying data.
20.22.040 Required Findings.
20.22.045 Community Development Director or stipulated designee action.
20.22.050 Expiration.
20.22.055 Recording of a Notice of Merger.
20.22.060 Monumentation of a Lot Merger.
20.22.065 Lot-tie covenant.

Chapter 20.24 City-Initiated Lot Mergers

20.24.010 Purpose.
20.24.015 Preparation.
20.24.020 Mergers not automatic with single ownership.
20.24.025 Application.
20.24.030 Lot merger plat map requirements.
20.24.035 Accompanying data.
20.24.040 Findings required.
20.24.045 Initiation.
20.24.050 Notice to affected property owner(s).
20.24.055 Zoning Administrator action.
20.24.060 Recording.
20.24.065 Monumentation of a Lot Merger.
20.24.070 Expiration.

Chapter 20.28 Illegal Lots and Certificates of Compliance

20.28.010 Applicability and criteria for approval.
20.28.020 Conditional approval.
20.28.030 Deed restriction.
20.28.040 Conditions required for building permit issuance.
20.28.050 Created before April 4, 1975—Filing.
20.28.060 Created before April 4, 1975—Certificate of compliance.
20.28.070 Created before April 4, 1975—Recording.
20.28.080 Created before April 4, 1975—Map.
20.28.090 Created after April 4, 1975.

Chapter 20.30 Common Interest Subdivisions

20.30.010 Applicability.
20.30.020 Purpose.
20.30.030 Property development standards for airspace condominiums.
20.30.040 Property development standards for planned unit developments.
20.30.050 Property improvement standards for common interest subdivisions.
20.30.060 Application requirements for common interest subdivisions.

Chapter 20.31 Airspace Subdivisions

20.31.010 Applicability.
20.31.020 Tentative map requirements.

Chapter 20.32 Condominium, Community Apartment Project and Stock Cooperative Conversion

Article 1. General Provisions

20.32.010 Purpose.
20.32.025 Exclusions—Certification procedures.

Article 2. Residential Rental to Residential/Commercial/Industrial Ownership Requirements

20.32.030 Generally.
20.32.040 Tenant notice.
20.32.050 Tenant option to purchase.
20.32.060 New tenant disclosure.
20.32.085 Harassment.
20.32.090 Code compliance.
20.32.100 Major system corrections.
20.32.110 Sound attenuation.
20.32.120 Smoke and Carbon Monoxide Detection equipment.
20.32.130 Parking requirements.
20.32.140 Distribution of required parking.
20.32.150 Building security.
20.32.160 Energy conservation requirements.
20.32.170 Minimum size.
20.32.175 Existing Conditions Report required.
20.32.180 Improvement Plan.
20.32.185 Typical conditions.
20.32.190 Required findings.
20.32.195 Exceptions.

Article 3. Commercial/Industrial/Rental to Commercial/Industrial/Residential Ownership

20.32.200 Generally.
20.32.210 Tenant notice.
20.32.220 Tenant option to purchase.
20.32.230 New tenant disclosure.
20.32.240 Parking.
20.32.250 Building code compliance.
20.32.260 Major system corrections.
23.32.265 Exemptions.

Article 4. Mixed Use Conversions.

20.32.510 Conversions.

Article 5. Exceptions and Special Requirements

20.32.520 Exceptions.

20.32.530 Exceptions—Conversions to limited equity cooperatives.

20.32.540 Exceptions—Conversions of community apartment or stock cooperatives to condominiums.

20.32.550 Special requirements—Conversion of a stock cooperative or a community apartment project to a condominium.

Article 6. Disclosure of Prior Occupancy Status

20.32.680 Purpose.

20.32.690 Disclosure.

Chapter 20.34 Subdivision of a Mobilehome Park

Article 1. Conversion to Another Use

20.34.010 Change of use.

20.34.020 Impact report.

20.34.030 Impact report available to residents of the mobilehome.

20.34.040 Impact mitigation requirements.

20.34.050 Termination of tenancy.

20.34.060 New resident disclosure.

Article 2. Conversion of a Mobilehome Park to a Condominium, Community Apartment or Stock Cooperative

20.34.070 Applicable conversion regulations.

Article 3. Subdivision of an Existing Mobilehome Park to Create Individual Ownership Lots

20.34.080 Right of first refusal.

20.34.090 Lifetime leases.

20.34.100 Compliance with State law.

20.34.110 Infrastructure facilities survey required.

Chapter 20.36 Definitions

20.36.010 Generally.

20.36.015 Advisory agency.

20.36.020 Airspace subdivision.

20.36.025 Certificate of compliance.

20.36.030 Common interest subdivision.
20.36.035 Community apartment.
20.36.040 Condominium.
20.36.045 Condominium plan.
20.36.050 Contiguous parcels.
20.36.055 Covenants, Conditions & Restrictions (CC&Rs).
20.36.060 Dedication.
20.36.065 Drainage facility.
20.36.070 Environmental clearance.
20.36.075 Parcel map.
20.36.080 Final tract map.
20.36.085 Flag lot.
20.36.090 Freeway regional corridor.
20.36.095 Frontage road or service road.
20.36.100 Geological hazard.
20.36.105 Illegal lots.
20.36.110 Land surveyor.
20.36.120 Lease, building.
20.36.125 Lease, ground.
20.36.130 Limited equity housing cooperative or a workforce housing cooperative trust.
20.36.135 Lot, legal.
20.36.140 Lot area.
20.36.145 Lot area, net.
20.36.150 Lot line adjustment.
20.36.155 Merger.
20.36.160 Model home.
20.36.170 Monument.
20.36.175 Owner.
20.36.180 Own your own.
21.36.185 Parcel.
20.36.190 Parcel map.
20.36.200 Plat map.
20.36.205 Planned development.
20.36.210 Public Resources.
20.36.220 Qualified subdivision map preparer.
20.36.225 Reservation.
20.36.230 Revised tentative map.
20.36.235 Right-of-Way.
20.36.240 Sidewalk.

20.36.243 Sequentially.
20.36.245 Site Plan.
20.36.247 Special flood hazard area.
20.36.250 Stock cooperative.
20.36.260 Street.
20.36.265 Subdivider.
20.36.270 Subdivision.
20.36.273 Subdivision Map Act.
20.36.275 Surveyor.
20.36.280 Tentative map.
20.36.285 Tract map.
20.36.290 Traffic-control devices.
20.36.295 Unit.
20.36.300 Vacation.
20.36.305 Vesting tentative map.
20.36.310 Waived Parcel Map.

CHAPTER 20.02 GENERAL PROVISIONS

20.02.010 Title.

The provisions of this part shall be known as the "Subdivision Regulations of the City of Long Beach" and shall be referred to therein as "these regulations." (ORD-23-0051 § 1(Exh. A), 2023)

20.02.020 Purpose and intent.

The purpose of these regulations is:

A. To provide policies, standards, requirements, and procedures to regulate and control the design and improvement of all subdivisions within the City;

B. To implement the objectives, policies, and programs of the general plan by ensuring that all proposed subdivisions, together with the provisions for their design and improvement, are consistent with all elements of the general plan and all applicable specific plans;

C. To preserve and protect the unique and valuable natural resources and amenities of the City's environment and to maximize the public's access to and enjoyment of such resources and amenities through the dedication or continuance of appropriate public easements thereto;

D. To assure that development is consistent with the Local Coastal Plan and that issues including, but not limited to sea level rise, sensitive habitat protection, and water quality, are addressed with the review of subdivision maps;

E. To approve subdivisions which accomplish the following objectives:

1. Create lots of sufficient size and appropriate design in the interest of the public health, safety, and welfare.

2. Deliver an adequate system of utilities needed to service the development and address public health, safety, and convenience.

3. Provide streets of adequate capacity and design to accommodate traffic, and to ensure maximum safety for pedestrians and vehicles.

F. To provide streets and sidewalks of adequate capacity and design that efficiently accommodate all modes of transportation consistent with the Mobility Element of the General Plan, Americans with Disabilities Act (ADA), and streetscape amenities to beautify corridors;

G. To ensure maximum safety for all modes of transportation by including improvements that encourage walkability, bikeabilty and provide neighborhood connectivity; and

H. To clarify the processes and submittal requirements for different types of subdivision requests to streamline the review process and ensure consistency. (ORD-23-0051 § 1(Exh. A), 2023)

20.02.030 Authority.

These regulations are adopted pursuant to the Subdivision Map Act of the State of California (Map Act) and are supplemental to the provisions thereof. Consistent with the intent and spirit of the Map Act, Sections 6700 through 6799, inclusive of the California Business and Professions Code (the Professional Engineers Act), Sections 8700 through 8805, inclusive of the California Business and Professions Code (the Professional Land Surveyors Act), and Sections 7800 through 7887 of the California Business and Professions Code (the Geologist and Geophysicist Act), some local provisions are incorporated into these regulations to reflect processing practices and requirements. All provisions of the above-stated Map Act and future amendments thereto not incorporated in these regulations shall, nevertheless, apply to all subdivisions and proceedings under these regulations. (ORD-23-0051 § 1(Exh. A), 2023)

20.02.040 Applicability.

The regulations shall apply to all subdivisions within the City of Long Beach, the preparation of subdivision maps, and to other maps and survey records provided for by the Subdivision Map Act. Exempted land transactions not subject to filing a tentative and final parcel map are noted in Section 20.02.050. Each subdivision, or other map process, within the City shall be prepared and submitted for approval consistent with these regulations. (ORD-23-0051 § 1(Exh. A), 2023)

20.02.050 Exemptions.

These regulations shall not apply to:

A. The financing or leasing of apartments, offices, stores, or similar spaces within apartment buildings, industrial buildings, commercial buildings, mobilehome parks, or trailer parks.

B. Mineral, oil, or gas leases.

C. Land dedicated for cemetery purposes under the Health and Safety Code of the State of California.

D. A lot line adjustment between four or fewer existing adjoining parcels, where the land taken from one lot is added to the adjoining lot, and where a greater number of lots than originally existed is not thereby created.

E. Boundary line or exchange agreements to which the State Lands Commission or a local agency holding a trust grant of tide and submerged lands is a party.

F. Any separate assessment under Section 2188.7 of the Revenue and Taxation Code.

G. The conversion of a community apartment project as defined in Section 4105 of the Civil Code, to a condominium, as defined in Section 783 of the Civil Code, but only if all of the following requirements are met:

1. The property was subdivided before January 1, 1982, as evidenced by a recorded deed creating the community apartment project.

2. Subject to compliance with Sections 4290 and 4295 of the Civil Code, all conveyances and other documents necessary to effectuate the conversion shall be executed by the required number of owners in the project as specified in the bylaws or other organizational documents. If the bylaws or other organizational documents do not expressly specify the number of owners necessary to execute the conveyances and other documents, a majority of owners in the project shall be required to execute the conveyances or other documents. Conveyances and other documents executed under the foregoing provisions shall be binding upon and affect the interests of all parties in the project.

3. If subdivision, as defined in Section 66424, of the property occurred after January 1, 1964, both of the following requirements are met:

a. A final or parcel map of that subdivision was approved by the local agency and recorded, with all of the conditions of that map remaining in effect after the conversion.

b. No more than 49 percent of the units in the project were owned by any one person as defined in Section 17, including an incorporator or director of the community apartment project, on January 1, 1982.

4. The local agency certifies that the above requirements were satisfied if the local agency, by ordinance, provides for that certification.

H. The conversion of a stock cooperative as defined in Section 4190 or 6566 of the Civil Code, to a condominium, as defined in Section 783 of the Civil Code, but only if all of the following requirements are met:

1. The property was subdivided before January 1, 1982, as evidenced by a recorded deed creating the stock cooperative, an assignment of lease, or issuance of shares to a stockholder.

2. A person renting a unit in a cooperative shall be entitled at the time of conversion to all tenant rights in state or local law, including, but not limited to, rights respecting first refusal, notice, and displacement and relocation benefits.

3. Subject to compliance with Sections 4290 and 4295, or with Sections 6626 and 6628, of the Civil Code, all conveyances and other documents necessary to effectuate the conversion shall be executed by the required number of owners in the cooperative as specified in the bylaws or other organizational documents. If the bylaws or other organizational documents do not expressly specify the number of owners necessary to execute the conveyances and other documents, a majority of owners in the cooperative shall be required to execute the conveyances or other documents. Conveyances and other documents executed under the foregoing provisions shall be binding upon and affect the interests of all parties in the cooperative.

4. If subdivision, as defined in Section 66424, of the property occurred after January 1, 1980, both of the following requirements are met:

a. A final or parcel map of that subdivision was approved by the local agency and recorded, with all of the conditions of that map remaining in effect after the conversion.

b. No more than 49 percent of the shares in the project were owned by any one person as defined in Section 17, including an incorporator or director of the cooperative, on January 1, 1982.

5. The local agency certifies that the above requirements were satisfied if the local agency, by ordinance, provides for that certification.

I. The leasing of, or the granting of an easement to, a parcel of land, or any portion or portions thereof, in conjunction with the financing, erection, and sale or lease of a wind powered electrical generation device on the land, if the project is subject to discretionary action by the advisory agency or legislative body.

J. The leasing or licensing of a portion of a parcel, or the granting of an easement, use permit, or similar right on a portion of a parcel, to a telephone corporation as defined in Section 234 of the Public Utilities Code, exclusively for the placement and operation of cellular radio transmission facilities, including, but not limited to, antennae support structures, microwave dishes, structures to house cellular communications transmission equipment, power sources, and other equipment incidental to the transmission of cellular communications, if the project is subject to discretionary action by the advisory agency or legislative body.

K. Leases of agricultural land for agricultural purposes. As used in this subdivision, "agricultural purposes" means the cultivation of food or fiber, or the grazing or pasturing of livestock.

L. The leasing of, or the granting of an easement to, a parcel of land, or any portion or portions thereof, in conjunction with the financing, erection, and sale or lease of a solar electrical generation device on the land, if the project is subject to review under other local agency ordinances regulating design and improvement or, if the project is subject to other discretionary action by the advisory agency or legislative body.

M. The leasing of, or the granting of an easement to, a parcel of land or any portion or portions of the land in conjunction with a biogas project that uses, as part of its operation, agricultural waste or byproducts from the land where the project is located and reduces overall emissions of greenhouse gases from agricultural operations on the land if the project is subject to review under other local agency ordinances regulating design and improvement or if the project is subject to discretionary action by the advisory agency or legislative body.

N. The financing or leasing of any parcel of land, or any portion thereof, in conjunction with the construction of commercial or industrial buildings on a single parcel, unless the property is not subject to review under other local agency ordinances regulating design and improvement.

O. The financing or leasing of existing separate commercial industrial buildings on a single parcel.

P. The leasing of public properties.

Q. Conveyance of land to a governmental agency, public entity, or public utility, subsidiary of a public utility, for conveyance to that public utility for rights-of-way shall not be considered a division of land for purposes of computing the number of parcels. For purposes of this section, any conveyance of land to or from a governmental agency shall include a fee interest, a leasehold interest, an easement, or a license.

R. Subdivisions created by short-term leases (terminable by either party not more than thirty (30) days' notice in writing) of a portion of the operating right-of-way of a railroad corporation defined as such by Section 230 of the Public Utilities Code. (ORD-23-0051 § 1(Exh. A), 2023)

20.02.060 Compliance required.

No person shall sell, lease, finance, or transfer title to any parcel or to any portion of a subdivision or re-subdivision unless a final tract map, a parcel map, a record of survey, or a certificate of compliance has been approved by the City and recorded in the office of the Los Angeles County Recorder, or unless exempted as specified in Sec-

tion 20.02.050. (ORD-23-0051 § 1(Exh. A), 2023)

20.02.070 Violation—Building permit withheld.

No building permit shall be issued, and no structure shall be constructed or enlarged on any parcel of real property which has been subdivided in violation of the Subdivision Map Act or City regulations, until the property owner has complied with all the requirements of these regulations. (ORD-23-0051 § 1(Exh. A), 2023)

20.02.080 Fees.

A. Fees Required. At the time of submitting an application for any of the procedures authorized by this title, a filing fee shall be paid as established by resolution of the City Council. Required fees shall be paid at the time of filing of any application.

B. Purpose of Fees. Such fees are imposed for the purpose of reimbursing the City for costs incurred in investigating and acting upon an application and for administering the provisions of this Title relating to the application.

C. Refund of Fees. Fees shall not be refunded if the City has incurred costs in connection with the application, but partial and prorated refunds may be granted by the City if projects are withdrawn prior to the public hearing. (ORD-23-0051 § 1(Exh. A), 2023)

20.02.090 Violation—Penalty.

Each violation of any provisions of these regulations by a person who is the subdivider or an owner of record, at the time of the violation, of property involved in the violation shall be punishable by imprisonment in the county jail not exceeding one year or in the state prison, by a fine not exceeding ten thousand dollars ($10,000), or by both that fine and imprisonment. Every other violation of this division is a misdemeanor. (ORD-23-0051 § 1(Exh. A), 2023)

CHAPTER 20.04 REVIEW AUTHORITY

20.04.010 Purpose and intent.

This Chapter is intended to establish the applicable review authority for maps, lot line adjustments, mergers, and other approvals provided for in this Title 20 - Subdivisions. Some processes are ministerial, such as lot line adjustments and voluntary mergers, and do not require a public hearing. Other processes such as tentative maps require a public hearing. Tables 1 and 2 are included in this chapter to summarize the applicable process for the various types of maps and documents covered within Title 20 - Subdivisions. Additional details on the administrative procedures for different types of subdivision maps and services are detailed in subsequent chapters. (ORD-23-0051 § 1(Exh. A), 2023)

20.04.020 City Council.

A. The City Council shall review and have final approval authority for:

1. Final tract maps - The Council shall consider and approve the final map if it finds that all requirements of the map have been satisfied and adequate financial security provisions have been made to guarantee compliance with these requirements, and shall also accept or reject, on behalf of the public, any real property offered for dedication for public use.

2. Appeals of the Planning Commission's actions on tentative tract maps. (ORD-23-0051 § 1(Exh. A), 2023)

20.04.030 Planning Commission.

A. The Planning Commission shall review and have final approval authority for:

1. Tentative tract maps that consist of 50 or more residential units/lots;

2. Tentative tract maps for non-residential projects;

3. Tentative condominium maps/airspace lots with 50 or more residential units/lot;

4. Tentative condominium maps/airspace lots for non-residential projects;

5. Condominium conversions for with 50 or more residential units;

6. Condominium conversions for non-residential projects;

7. Major corrections or changes to an approved tentative tract map prior to the recordation of the final map; and

8. Appeals of Zoning Administrator's action on parcel maps, City-initiated lot mergers, tentative tract maps with less than 50 units/lots, tentative tract maps with 100% affordable units/lots, tentative parcel maps, tentative condominium maps with less than 50 residential units, and condominium conversions with less than 50 residential units.

B. The Planning Commission shall:

1. Approve, conditionally approve, or disapprove tentative maps in accordance with these regulations;

2. Prescribe the kinds, nature, and extent of improvements required to be installed in each subdivision; and

3. Grant exceptions or modifications to the requirements of these regulations where such exceptions will not be detrimental to the public welfare. (ORD-23-0051 § 1(Exh. A), 2023)

20.04.040 Zoning Administrator.

A. The Zoning Administrator is designated as the decision-making entity for:

1. Parcel maps;

2. Tentative tract maps that are 100% affordable;

3. Tentative tract maps that consist of 50 or less residential units/lots;

4. Tentative condominium maps/airspace lots with 50 or less residential units/lot;

5. Condominium conversions for with 50 or less residential units;

6. City-required mergers;

7. Major corrections or changes to an approved parcel map prior to the recordation of the final map.

B. The Zoning Administrator shall be a Planning Officer designated by the Director of Community Development with the approval of the Planning Commission. In the absence of the Zoning Administrator, the Community Development Director may assume the responsibilities of the Zoning Administrator or may designate a Planner III or other higher designee. (ORD-23-0051 § 1(Exh. A), 2023)

20.04.050 Public Works Director.

A. Final/tract and parcel maps shall be filed with the Department of Public Works for review and approval by the Public Works Director. (ORD-23-0051 § 1(Exh. A), 2023)

20.04.060 Community Development Director.

A. The Community Development Director shall review and have final approval authority for various ministerial actions related to minor map adjustments and administrative actions related to subdivisions. Ministerial actions are focused on whether or not the request is consistent with the guidance included in this ordinance and consistency with the provisions of the State Subdivision Map Act.

1. Time Extensions. The Community Development Director may grant extensions of time to the expiration of approved tentative maps in accordance with these regulations without the requirement for a public hearing.

2. Lot Line Adjustments/Voluntary Mergers. The Community Development Director shall approve, conditionally approve, or disapprove a minor lot line adjustment for four or fewer contiguous legal lots or voluntary mergers in accordance with these regulations without the requirement for a public hearing.

3. Other Actions. Within subsequent sections of this Ordinance, other minor actions are identified that are ministerial and can be approved without a hearing. These actions include the following:

a. Certificates of compliance.

b. Lot tie covenant.

c. Condo conversion exclusion.

d. Minor amendments to tentative maps.

e. Urban lot split. (ORD-23-0051 § 1(Exh. A), 2023)

20.04.070 Appeals authorization and jurisdiction.

A. Appeals Authorization. Any aggrieved person may appeal a decision on any project that required a public hearing. Pursuant to Section 21.15.120 of the Zoning Regulations, an Aggrieved person is any person who testified personally or through a representative at a public hearing; or who informed the staff of the Community Development Department in writing prior to the hearing of an interest in the subject of a hearing.

B. Appeals Jurisdiction. The Planning Commission shall have jurisdiction on appeals of decisions issued by the Zoning Administrator, and the City Council shall have jurisdiction on appeals from the Planning Commission. Decisions lawfully appealable to the California Coastal Commission shall be appealed to that body.

C. Except as specified by this Code, decisions that are recommendations to the Planning Commission or to the City Council are not subject to appeal. (ORD-23-0051 § 1(Exh. A), 2023)

20.04.080 Time to file an appeal.

An appeal must be filed within ten (10) calendar days after the decision is made for which a public hearing was required. If the end of an appeal period falls on a weekend or a holiday, the appeal must be filed by the end of the first working day thereafter. (ORD-23-0051 § 1(Exh. A), 2023)

20.04.090 Form of filing an appeal.

All appeals shall be filed with the appropriate fee with Planning Bureau of the Community Development Department on a form provided by that department. (ORD-23-0051 § 1(Exh. A), 2023)

20.04.100 Time for conducting hearing of appeals.

A public hearing on an appeal shall be held:

A. In the case of appeals to the Planning Commission, within sixty (60) days of the date of filing of the appeal with the Community Development Department;

B. In the case of appeals to the City Council, within sixty (60) days of the receipt by the City Clerk from the Community Development Department of the appeal filed with the Department; or

C. The Director of Community Development may provide an extension of the period for an appeal to be adjudicated for up to ninety (90) days. (ORD-23-0051 § 1(Exh. A), 2023)

20.04.110 Appeal Hearing—Notice.

A notice of the public hearing on the appeal shall be mailed by the Community Development Department to the applicant and any known aggrieved person not less than fourteen (14) prior to the hearing. Such notice shall contain the same information as the original notice except that it shall also give the appellant's name and state that the hearing is an appeal. (ORD-23-0051 § 1(Exh. A), 2023)

20.04.120 Finality of appeals.

A. Decision Rendered. After a decision on an appeal has been made and required findings of fact have been adopted, that decision shall be considered final and no other appeals may be made except:

1. Projects located seaward of the appealable area boundary, as defined in Section 21.25.908 (Coastal Permit—Appealable Area) of the City's Zoning Regulations, may be appealed to the California Coastal Commission.

B. No Appeal Filed. After the time for filing an appeal has expired and no appeal has been filed, all decisions shall be considered final.

C. Local Coastal Development. Decisions on local coastal development permits seaward of the appealable area shall not be final until the procedures specified in Chapter 21.25 (Coastal Permit) of the City's Zoning Regulations are completed. (ORD-23-0051 § 1(Exh. A), 2023)

20.04.130 Appeal Findings.

All decisions on appeal shall be based upon the same conclusionary findings, if any, required to be made in the original decision from which the appeal is taken. (ORD-23-0051 § 1(Exh. A), 2023)

20.04.140 Appeal Fees.

A fee shall be charged for filing an appeal as established by Council resolution.

Table 1 - Ministerial Subdivision Actions

Subdivision Type	Ministerial Subdivision Approval		Notice Required
	Admin	ZA	
Certificate of Compliance			
Final Decision	X[(a)]		No
Lot Tie Covenant			
Final Decision	X[(a)]		No
Condo Conversion Exclusion			
Final Decision	X[(a)]		No
Lot Line Adjustment			
Final Decision	X[(a)]		No
Time Extension - Tentative Maps			
Final Decision	X[(a)]		No
Minor Amendments to Tentative Maps			
Final Decision	X[(a)]		No
Voluntary Lot Merger			
Final Decision	X[(a)]		No
Urban Lot Split			
Final Decision	X[(a)]		No

Abbreviations: Admin = Administrative Approval; ZA = Zoning Administrator

[(a)] Not subject to an appeal and is considered final upon approval.

Table 2 - Level of Review for Different Subdivision Actions

Subdivision Type	Responsible Hearing Body[(b)]			Notice Required[(a)]
	ZA	PC	CC	
Tentative Map[(d)]				
Tentative Tract Map - Non residential				
Initial hearing		X		Yes
Appeal			X	Yes
Tentative Tract Map ≥ 50 residential units/lots				
Initial hearing		X		Yes
Appeal			X	Yes
Tentative Condominium Map/Airspace Lots - Non residential				
Initial hearing		X		Yes
Appeal			X	Yes
Tentative Condominium Map/Airspace Lots ≥ 50 units				
Initial hearing		X		Yes
Appeal			X	Yes
Condo Conversion - Non residential				
Initial hearing		X		Yes
Appeal			X	Yes
Condo Conversion ≥ 50 residential units				
Initial hearing		X		Yes
Appeal			X	Yes
Tentative Tract Map With ≤ 50 residential units/lots				
Initial hearing	X			Yes
Appeal		X		Yes
Tentative Tract Map With 100% Affordable residential units/lots				
Initial hearing	X			Yes
Appeal		X		Yes
Tentative Condominium Map/Airspace Lots ≤ 50 residential units				
Initial hearing	X			Yes
Appeal		X		Yes

Subdivision Type	Responsible Hearing Body[b]			Notice Required[a]
	ZA	PC	CC	
Tentative Map[d]				
Condo Conversion ≤ 50 residential units				
Initial hearing	X			Yes
Appeal		X		Yes
Tentative Parcel Map				
Initial hearing	X			Yes
Appeal		X		Yes
Lot Merger				
City Initiated Lot Merger				
Initial hearing	X			Yes
Appeal		X		Yes
Street Name Change				
Initial hearing		X[c]		Yes
Right-of-Way Vacation (General Plan Conformity Finding)				
Initial hearing		X[c]		No

Abbreviations: Admin = Administrative Approval; ZA = Zoning Administrator; PC = Planning Commission; CC = City Council

(a) See Section 20.04 for appeal noticing requirements.

(b) Project within the Coastal Zone - Appealable Area of the City may be appealed to the California Coastal Commission.

(c) Recommendation to City Council, not subject to appeal pursuant to Chapter 20.04 - Appeals.

(d) Applicable to processing of Vesting Tentative Map. (ORD-23-0051 § 1(Exh. A), 2023)

CHAPTER 20.06 TYPES OF MAPS REQUIRED

20.06.020 Parcel map.

A. Whenever any provision of this title requires a subdivision map to be filed, such map shall be a tentative and parcel map if:

1. The subdivision includes four (4) or less lots or condominium units (or other common interest subdivisions) for residential development or use; or

2. The subdivision is for commercial or industrial development, and has the City's approval of the street alignments and widths; or

3. The land before division contains less than five acres, each lot created by the division abuts upon a maintained public street or highway, and no dedications or improvements are required by the legislative body; or

4. Each lot will have a gross area of twenty (20) acres or more and has approved access to a maintained public street or highway; or

5. The land being subdivided is solely for the creation of an environmental subdivision pursuant to Map Act Section 66418.2. (ORD-23-0051 § 1(Exh. A), 2023)

20.06.040 Final/Tract map.

A. Whenever any provision of this part requires a tentative map to be filed, such map shall be a tract map if the subdivision does not qualify for a parcel map pursuant to Section 20.06.020.

B. A tentative and final tract map shall be required for all subdivisions creating five or more lots, five or more condominiums as defined in Section 783 of the Civil Code, a community apartment project containing five or more lots, or for the conversion of a dwelling to a stock cooperative containing five or more dwelling units. (ORD-23-0051 § 1(Exh. A), 2023)

20.06.060 Lot Line Adjustment.

A. Consistent with the Subdivision Map Act Section 66412(d), a tentative map and parcel map is not required for a lot line adjustment between four or fewer existing adjoining parcels where the land taken from one parcel is added to an adjoining parcel, and where a greater number of parcels than originally existed is not thereby created. Pursuant to the law, adjoining lots may be separated by road, streets, railroads or similar.

B. The final lot line adjustment shall be reflected in a deed, which shall be recorded to effectuate the lot line adjustment. As an alternative, a

parcel map may be utilized in lieu of a lot line adjustment. Applicants may request a waiver of the tentative parcel map.

In addition to the recordation of deeds to perfect the lot line adjustment, modified deeds of trust will need to be executed by the lenders, if any.

C. Multiple lot line adjustments submitted concurrently or sequentially to circumvent the "four or fewer existing adjoining parcels" will not be permitted. A parcel map or tract map will be required. A waiver of a tentative parcel map may be granted. (ORD-23-0051 § 1(Exh. A), 2023)

20.06.080 Maps Required.

A. Map requirements for the maps previously described as well as some other types of subdivision projects are summarized in Table 3—Maps Required for Various Subdivision Projects.

Table 3 - Maps Required for Various Subdivision Projects

Project Type	Maps Required	Notes
Subdivisions creating four or fewer lots or condominiums	Tentative parcel map or vesting tentative parcel map and final map.	Parcel map not required pursuant to Sections 20.02.050.Q & R.
Subdivisions creating five or more lots or condominiums	Tentative tract map or vesting tentative tract map and final/tract map.	Parcel map may be substituted for final map, pursuant to Section 20.04.020.A - when permitted by the SMA.
Lot line adjustments between four or fewer existing adjoining parcels	Plat map exhibit, drawn to scale, and suitable for recording. A site plan to verify building code, zoning, access etc. is required.	A site plan is required and may trigger a record of survey. The record of survey may be submitted with the application.
Lot line adjustments between five or more existing adjoining parcels	Tentative map or vesting tentative map and final/tract map.	Parcel map may be substituted for final/tract map, pursuant to Section 20.04.020.A.
Lot combinations (voluntary mergers)	Plat map exhibit, drawn to scale, and suitable for recording. A parcel map will be required for more than four parcels being merged into less parcels.	Tentative map or waived tentative map application may be submitted with the application.
Certificates of compliance and conditional certificates of compliance	Plat map exhibit, drawn to scale, and suitable for recording.	Also needed: legal descriptions and plat maps shall be prepared by a qualified individual will also be required.
Residential or commercial condominium conversions	Tentative map or vesting tentative map and parcel or final/tract map, depending on the number of lots created.	Commercial condominium projects may submit a parcel map rather than a final map, pursuant to Section 20.04.020.A.2.

(ORD-23-0051 § 1(Exh. A), 2023)

CHAPTER 20.08 DESIGN STANDARDS*

20.08.010 Purpose and applicability.

This chapter establishes standards for the design and layout of divisions of land. These standards apply to subdivisions and conditional certificates of compliance in addition to all other applicable requirements of the Municipal Code. The purpose of the standards is to ensure that new subdivisions are the result of thorough careful site evaluation and design and that they create lots that are compatible with existing neighborhoods, protect the natural environment, and enhance the health and safety of City residents. These standards have been developed to be consistent with the policies of the General Plan. Standards for the physical design of streets and associated public improvements can be found in the Public Works Engineering Standard Plans. (ORD-23-0051 § 1(Exh. A), 2023)

20.08.015 Density, use and standards.

The number of dwelling units permitted within a proposed subdivision, the use proposed for the subdivision, and the design of the project shall

*State law reference—Provisions authorizing local agencies to regulate and control the design of subdivisions, Gov. Code § 66411.

conform to the density and use established by the adopted general plan and shall comply with the use and other standards contained in the Zoning Regulations or as permitted by State Law. (ORD-23-0051 § 1(Exh. A), 2023)

20.08.020 Lots.

The number, design, character, grade, location, and orientation of lots shall be appropriate to the subdivision location and to the type and density of development as permitted by the General Plan and the Zoning Regulations or as permitted by State Law. The following policies and standards shall be observed:

A. Lot Width and Area. The minimum width and area of all lots shall conform to the requirements of the zoning district in which the subdivision is located; provided, however, if a lot is located in a zoning district for which no minimum lot width or area is specified, it shall have a minimum width of fifty feet (50') and a minimum area of six thousand (6,000) square feet. The advisory agency, or City Council on appeal, may waive the lot width and area requirements in accordance with Section 20.12.120 if it finds that:

1. Any lot facing on a curved street may have a frontage of less than required but not less than thirty-five feet (35'); or

2. The majority of lots adjacent to or in the immediate vicinity of the proposed subdivision have a substandard lot size and/or substandard lot width; however, each new lot shall not have a lot width or size less than the average lot width and size existing within a radius of three hundred feet (300'); or

3. The lot is a through lot with split zoning designations, frontage on two (2) parallel public streets and the lot has been developed with two (2) separate development projects fronting on each street.

B. These lot size requirements shall be waived for condominium and other common interest projects where:

1. One (1) lot is shown on the map and the lot boundaries overlay one (1) or more existing lots;

2. For lot line adjustments; and

3. For certificates of compliance.

C. Where determined necessary to promote the general welfare, the Planning Commission or the Zoning Administrator may require that lots within a subdivision be increased in size so as to conform to the size of existing nearby lots fronting on the same street; provided, however, that in such cases the Planning Commission or the Zoning Administrator shall not require that such lots be increased in area by more than fifty percent (50%) of the minimum lot area requirement of the zoning district.

D. Lot Lines. The side lot lines shall be at, or nearly at, right angles to straight street lines and radial to curved street lines, except where physical conditions would make this impracticable.

E. Lot Frontage. All lots within a proposed subdivision shall have a frontage on a public street or an approved private street.

F. Lots Adjoining City Limits. No lot shall be divided by a City or a County boundary line.

G. Lot Drainage. All lots shall be adequately drained. No cross-lot drainage shall be permitted. (ORD-23-0051 § 1(Exh. A), 2023)

20.08.030 Blocks—Length.

To encourage alternative modes of transportation, on average, blocks shall range from 300 to 400 feet in length. Blocks that are greater in length, up to 1,320 lineal feet, may be appropriate based on street type, General Plan Placetype, mobility factors, infrastructure, and development patterns, subject to satisfaction of the Directors of Community Development and Public Works. (ORD-23-0051 § 1(Exh. A), 2023)

20.08.040 Blocks—Corners.

The subdivider shall provide right of way dedications for corner cut-offs at all property corners to support installation of ADA compliant curb ramps and/or to provide for adequate line of sight for vehicular traffic to the satisfaction of the Director of Public Works. (ORD-23-0051 § 1(Exh. A), 2023)

20.08.050 Freeways.

Freeways shall conform in width and alignment to those designated in the Mobility Element

of the General Plan. If a parcel of land to be subdivided includes a portion of the right-of-way to be acquired for any such freeway, the subdivider shall dedicate the necessary right-of-way for the freeway. Access rights to this freeway shall also be abandoned with the final/tract map or parcel map. (ORD-23-0051 § 1(Exh. A), 2023)

20.08.060 Street dedications.

Street dedications on a map shall conform to the design criteria included in the Mobility Element and Urban Design Element of the General Plan. If a parcel of land to be subdivided includes a portion of the right-of-way required to extend a street, the subdivider shall dedicate the necessary right-of-way for said street on a map or by separate instrument. (ORD-23-0051 § 1(Exh. A), 2023)

20.08.070 Street access.

A. Each street, public or private, providing access to lots within a subdivision, shall provide access directly, or indirectly, such as through an intervening private street, to a public street outside the subdivision. In general, streets shall be laid out to conform to the alignment of existing streets in adjoining subdivisions and/or to be a logical continuation of existing streets.

B. Dead-end streets without provisions for an adequate turnaround shall be prohibited. When a temporarily dead-ended street is extended to the boundary of the subdivision, a barricade, temporary turning area, or temporary connection to another street shall be required for any such street.

C. The Mobility Element of the General Plan includes a context-sensitive street classification plan that designates all streets within Long Beach as one of the following types:

1. Local streets primarily provide access to individual residential parcels. The streets shall have a right-of-way width of not less than fifty-six feet (56') with a roadway width of not less than thirty-six feet (36') to forty feet (40') and are generally two lanes with on-street parking, tree planting strips, and sidewalks. Fire apparatus access roads serving structures, shall have an unobstructed width of not less than 26 feet.

2. Neighborhood connector streets serving residential areas but functioning as collector streets shall have a right-of-way width of not less than sixty feet (60') with a roadway width of not less than forty feet (40'). Fire apparatus access roads serving structures, shall have an unobstructed width of not less than 26 feet.

3. A minor avenue provides for the movement of traffic to neighborhood activity centers and serves as a route between neighborhoods. They have a right-of-way width of sixty feet (60') with a roadway width of fifty-four feet (54') to sixty feet (60') and have two to four lanes. Avenues serve as a primary bicycle route and may serve local transit routes as well.

4. A major avenue serves as the major route for the movement of traffic within the City as well as a connector to neighboring cities. Major avenues shall have right-of-way width of one hundred feet (100') with a roadway width of eighty feet (80') and may have four to six lanes. Most traffic using a major avenue will end the trip within the City (as opposed to through-traffic). As such, design treatment and traffic operation should give preference to this type of traffic. Long corridors with typically four or more lanes, avenues may be high-transit ridership corridors. Goods movement is typically limited to local routes and deliveries.

5. Boulevards are characterized by a long-distance, medium-speed corridor that traverses an urbanized area and typically consist of four or fewer vehicle travel lanes, but can have as many as eight lanes. These streets have a balanced multimodal function, landscaped medians, on-street parking, narrower travel lanes, more intensive land use oriented to the street, and wide sidewalks. Boulevards have a right-of-way width of eighty feet (80') to one hundred feet (100') and a roadway width of eighty feet (80'). Buildings uniformly line the edges.

Multiway boulevards, a variation of the boulevard characteristic of post war neighborhoods, contain a central roadway for through- traffic and parallel roadways for access to abutting property parking, and pedestrian and bicycle facilities. Par-

allel roadways are separated from the through-lane by curbed, landscaped islands that may also provide transit stops and pedestrian facilities.

6. Regional corridors contain four to eight lanes and are designed for intraregional and intercommunity mobility. These corridors emphasize traffic movement and include signalized pedestrian crossings. Regional corridors have a right-of-way width of one hundred feet (100') and a roadway width of eighty-four feet (84'). The adjacent land uses should provide continuous mixed-use and commercial land uses with adequate off-street parking to minimize dependency on on-street parking.

In general, any proposed subdivisions that extend to these various types of streets, and have improvement requirements that affect these corridors, shall conform to the design criteria included in the Mobility Element and implementation plans. Another source of related guidance that applies to the design and improvements of City streets is included in Chapter 4 of the Urban Design Element under the heading of Street Types.

Exceptions for a narrower street width, or other deviations to the improvement standards described here, and covered in further detail in the Mobility Element, may be approved based on findings to the satisfaction of the Directors of Community Development and Public Works. Findings for exceptions shall describe extenuating circumstances, such as creating streets that conform better to development patterns in the vicinity, provide for superior mobility for all modes of transportation, address infrastructure deficiencies in the area, and promote the goals, objectives and policies of the General Plan. (ORD-23-0051 § 1(Exh. A), 2023)

20.08.080 Private streets.

If off-street guest parking is provided as specified in the Zoning Regulations and if the street is not serving as a principal avenue of travel in the development, then such street may have a width of not less than twenty-eight feet (28') provided that curb parking shall be prohibited on one (1) side of the street. Private streets shall also incorporate safe places for pedestrians to walk within the project by the incorporation of sidewalks, separate walkways, or changes in hardscape to designate a pedestrian zone. The safety of pedestrians and bicyclists is the top priority with the design of private streets per the following provisions:

A. Provide a sidewalk of not less than five (5) feet in width along the length of at least one side of each private street.

B. Include appropriate speed control measures including roadway alignment, intersection spacing, bulb outs, etc., and shall provide adequate pedestrian and bicycle circulation patterns.

C. Include all relevant traffic safety features, including, but not limited to, traffic signs and markings, street lighting, cross walks with cross signals, and traffic signals.

D. Maintain and/or provide adequate public access to public facilities such as parks, schools, bike trails, transit stops, recreation areas, beaches, and other coastal recreations amenities.

E. Assure that access is provided for emergency vehicles.

F. The private street circulation pattern shall be designed to integrate with and minimize impacts to the adjacent public street system.

G. High volume private street developments shall provide multiple ingress/egress points as necessary to direct traffic to appropriately sized public streets.

H. Entrances to private streets, which have locking gates and are located on collector or larger streets, shall allow vehicles to turn around on-site without backing onto public streets. Adequate stacking room shall be provided between the entrance to private gated streets and the gate controller to avoid vehicle stacking across public sidewalks or intersections.

I. Private streets shall meet ADA requirements as required for public streets subject to the review and approval of the Director of Community Development and Director of Public Works.

J. Private streets in the coastal zone shall not obstruct visibility or physical access to coastal resources.

K. Fire apparatus access roads serving structures, shall have an unobstructed width of not less than 26 feet.

If at some future time a private street is offered for public dedication and use, said private street shall be brought into compliance with the standards required for public streets at that time, to the satisfaction of the Director of Public Works and prior to public acceptance of the dedication. (ORD-23-0051 § 1(Exh. A), 2023)

20.08.090 Cul-de-sac.

A cul-de-sac shall not exceed five hundred feet (500') in length unless emergency access to a public street is provided at the closed end in which case no point on the cul-de-sac may be more than four hundred feet (400') from the emergency access or five hundred feet (500') from the normal access end. A turnaround having a minimum curb radius of not less than thirty-eight feet (38') shall be provided, except where extraordinary conditions make strict enforcement of this rule impractical. Dead end roads longer than 150 feet shall be provided with an emergency vehicle turnaround. Cul de sacs for roads longer than 150 feet are required to be a minimum of a 96-foot minimum Diameter". (ORD-23-0051 § 1(Exh. A), 2023)

20.08.100 Service road.

Where a subdivision borders on a freeway or a regional corridor, and no alley access is feasible, a service road shall be provided. The service road shall have a roadway width of not less than twenty-four feet (24') for a one-way operation and twenty-eight feet (28') for two-way. An additional eight (8) foot right-of-way shall be provided on the residential side of the service road for sidewalks, street furniture, and parkway. (ORD-23-0051 § 1(Exh. A), 2023)

20.08.110 Street Naming Requirements for Subdivisions of Land.

A. Proposed street names shall be substantially different from existing street names so as not to be confused in sound or spelling. Selected names need to be easy to spell, pronounce and read so the public, especially children, can say the name correctly in an emergency.

B. Street names must include an appropriate classification such as "street," "way," "lane," etc., to be determined by the Community Development Department.

C. Street names must have fewer than fifteen characters, including letters, punctuation, and spaces, but not including the street classification.

D. Each proposed street, which is a continuation of an existing street, shall be given the same name as that existing street. Two street segments that do not form a continuous street, and are not proposed to form one, must have different names.

E. Where several street names are to be designated, such as within a new subdivision, the street names should be thematically organized and related to the local area of the subdivision.

F. Proposed street names shall be shown on preliminary plats when submitted to the city for review. (ORD-23-0051 § 1(Exh. A), 2023)

20.08.115 Street Name Changes for existing streets.

A. Purpose. An existing street name may be changed through the application process described below if good cause is shown that it would be beneficial to the neighborhood. Renaming of public or private streets or other named rights-of-way shall include early consultation with the affected community, multi-lingual notices in English, Spanish, and including any other language that is reasonably known to be prominent in the area. Local, state, and federal government agencies are exempted from this process.

B. Initiation. The Council, Planning Commission, Community Development Department or owner of adjoining property may initiate the renaming of an existing street. A nonrefundable application fee, established by the council, will be charged to a property owner initiating the process.

C. Application Information. The initiating party must file a completed street name applica-

tion with the Community Development Department. The application shall include the following:

1. A map with the existing street name, proposed street name and the reason for the requested street name change.

2. The width and length of the right-of-way.

3. A location map showing the street, or the portion of a street proposed for renaming.

4. A list of names and addresses of all affected property owners and occupants with their corresponding Assessor's Parcel Number (APN).

5. A petition signed and dated by over sixty-six percent (66%) of the affected property owners and tenants with their printed names and addresses which shall indicate their support of the proposed street renaming.

D. Staff Recommendations. The Community Development Director shall submit a staff report evaluating the proposed street name change with applicable materials prepared by the applicant to the Planning Commission for review at a noticed public hearing.

E. Noticing.

1. All abutting property owners and residents who will be affected by the proposed change shall be notified by mail of the scheduled public hearing on such a change.

F. Planning Commission Action. A street name change may be recommended for City Council approval by the Planning Commission through a resolution, based on the following findings, and subject to the following conditions:

1. Street change naming findings.

a. The proposed street name meets all the criteria contained in Section 20.08.110.

b. The public record supports that the proposed street name change is supported by property owners, residents, and business owners, and will be beneficial to the overall affected community.

2. Street change naming conditions.

a. Once the name change is approved by the City Council by recommendation of the Planning Commission, the Director of Public Works shall change City maps and street signs as necessary. The City may assess the applicant for reasonable costs for changing maps and replacing or installing signs.

b. The Community Development Department must notify all the appropriate public agencies and the property owners and tenants along the affected street. (ORD-23-0051 § 1(Exh. A), 2023)

20.08.120 Alleys.

Alleys are a key design tool in residential neighborhoods to reduce trip generation on adjacent streets, to minimize the dominance of garage doors on the streetscape, and to improve the pedestrian orientation and larger multimodal network connectivity of local streets. Whenever practicable, alleys shall be required at the rear of all lots that are in residential zones and that front an arterial street, or where the front vehicular access is impractical, undesirable, or limited. Each new residential alley shall have a minimum width of twenty feet (20'). The Planning Commission or Zoning Administrator may require widening of an existing alley if it has a width of less than twenty feet (20'). All dead-end alleys shall be constructed with adequate turning areas. Alleys serving industrial zones shall be 30 feet wide to accommodate large vehicle maneuvering, unless otherwise approved by the designated review authority. (ORD-23-0051 § 1(Exh. A), 2023)

20.08.130 Sidewalks.

In compliance with the Americans with Disabilities Act (ADA) and to promote accessibility for people of all abilities, a sidewalk shall be provided along each side of each street and shall have a minimum clear width of five feet (5'). Encroachments may be permitted pursuant to Public Works standards, but in no case shall it be reduced to less than forty-eight inches (48") clear. In circumstances where there is limited space to provide sidewalks on both sides of the street, alternative mobility improvements or amenities in the project may be considered with the support of the Director of Public Works. The final decision-making authority for the map (Planning Commission or

Zoning Administrator) shall include findings to document the rationale for why an exception to the typical standard was supported. (ORD-23-0051 § 1(Exh. A), 2023)

20.08.140 Bikeways.

Bikeways shall be provided in accordance with the adopted mobility element of the general plan. The bikeway system shall meet minimum State standards. (ORD-23-0051 § 1(Exh. A), 2023)

20.08.150 Utility easements on a map.

The subdivider shall dedicate all necessary easements for utility purposes, including but not limited to gas, water and sewer as required by the Planning Commission or the Zoning Administrator. (ORD-23-0051 § 1(Exh. A), 2023)

20.08.160 Model Homes.

Model homes are often provided as examples of housing types available for sale in residential subdivision tracts. Model homes are subject to the following:

A. Not more than fifteen percent (15%) of the overall units, and in no case more than the total number of different floor plans offered in a subdivision, may be designated as sites for the construction of model homes;

B. For a project which consists of condominium or other common interest units within one building with common garage parking, the model home or unit shall be a temporary structure on the site;

C. Such model home sites shall be located in such a manner that existing developed residential properties shall not be adversely affected;

D. Such model sites shall be easily accessible, and provision for such accessibility shall be assured at the time the tentative map is approved;

E. A parking plan shall be submitted and approved to the satisfaction of the Director of Community Development or Designee;

F. Model home complex projects shall be subject to approval from the Site Plan Review Committee; and

G. In accordance with Section 18.04.040.A.1.3, building permits for model homes will not be issued until the property owner has complied with all of the requirements listed above and the Director of Public Works has granted permission authorizing permit issuance. (ORD-23-0051 § 1(Exh. A), 2023)

20.08.165 Monuments.

For all subdivisions defined in the sections of this ordinance, monuments shall be set that are sufficient to re-trace the boundaries of the subdivisions and shall be set prior to the filing of the subdivision map as follows:

A. All exterior boundary corners shall be marked with a 2-inch diameter iron pipe (minimum of 24 inches long) placed a minimum of 0.10 feet below the surface of the land unless an alternative to said pipe has been approved by the Designated City Surveyor.

B. All interior lot and parcel corners shall be marked with a 1-inch diameter iron pipe (minimum of 18 inches long) placed a minimum of 0.10 feet below the surface of the land unless an alternative to said pipe has been approved by the Designated City Surveyor.

C. All centerline monuments shall be placed in a monument well at the actual centerline intersection of streets and points of curvature (beginning of curves, end of curves, points of reverse curvature, etc.) and built and installed per an approved city standard plan and approved by the Designated City Surveyor prior to installation. If the centerline intersection falls on a manhole or other utility cover, it shall be evidenced by a monument well per an approved city standard plan within a 5-foot offset, on line with the centerline in one direction. Additional distance to be approved by the Designated City Surveyor.

D. All centerline monuments shall be set with a minimum of four tangent over ties with the tag of the licensed surveyor in a location that shall not be disturbed or destroyed. Each centerline monument shall have centerline ties and a Corner Record submitted to the County of Los Angeles. The

Corner Records shall be reviewed and approved by the Designated City Surveyor prior to submission to the County of Los Angeles.

E. Found existing survey monuments, if accepted, that are illegible, do not contain a tag, are damaged, and/or of no reference, shall be tagged by the licensed surveyor performing the subdivision and/or reset if damaged. All monuments found, set, reset, replaced, or removed, describing their kind, size, and location, and giving other data relating thereto.

Any monument accepted for survey control that is found to be insufficient in character, markings and material by the Designated City Surveyor shall be replaced with a monument per an approved city standard plan. The Designated City Surveyor shall determine the durability of a monument. All spikes having a shank of less than 4 ½" are not considered to be durable.

F. All monuments defined in this section shall comply with sections 8771 and 8772 of the California Business and Professions Code.

G. At no time will the use of Real Time Kinematic GPS (RTK or RTN) be allowable for the methods of setting or locating the positions of found or set monuments. This policy includes found or set monuments ties and the use of benchmarks.

H. The Designated City Surveyor may request any survey related documents, including, but not limited to, field notes, photographs, adjustments, CAD files prior to acceptance or approval of documents. (ORD-23-0051 § 1(Exh. A), 2023)

20.08.170 Right-of-way vacation.

A. The release of dedicated right-of-way for use for other purposes known as a "right-of-way vacation" or street abandonment is subject to the provisions and requirements of the California Streets and Highways Code Section 8300-8363. The processing of a right-of-way vacation typically accompanies a development application and is shown on a parcel or tract map, but may also be processed separately from a development application.

B. An applicant for a right-of-way vacation shall submit a preliminary title report that is specific to the portions of the right-of-way that are to be vacated and a preliminary right-of-way vacation map that contains the following information:

1. North arrow and scale. The scale shall be as large as possible to show the area being vacated and its relationship to surrounding properties.

2. Area. The overall area to be vacated needs to be clearly indicated and its overall area in square feet shown on plans.

3. Utilities and easements. The location of all existing utilities shall be shown on the map, including water, sewer, storm drain, telephone, gas, cable TV, streetlights, fire hydrants and any other public infrastructure. Also, any easements listed in the title report or otherwise in effect must be shown on the map.

4. Frontage improvements. The existing frontage improvements for all streets adjacent to the property; include sidewalk, curb, gutter, driveway approach, storm drain inlets, retaining walls, parkways, and street trees.

5. Structures. Show the footprint of all structures on lots adjacent to the proposed abandonment and provide the dimensions of the building setbacks to the proposed right-of-way line.

C. In evaluating a right-of-way vacation, the City needs to make the following findings:

1. The City right-of-way will not be needed for present or future public right-of-way purposes.

2. The continued access to any City or public utility services and improvements will be properly reserved.

3. The right-of-way vacation is consistent with goals and policies of the General Plan referencing specific applicable provisions.

D. The Planning Commission reviews the proposed right-of-way vacation to determine that is consistent with the City's General Plan and forwards a report to the City Council recommending approval of the right-of-way vacation, based on findings, and subject to conditions.

E. The City Council makes the final decision regarding a right-of-way vacation with a two-step hearing process:

1. With support by the Planning Commission that the right-of-way vacation is consistent

with the General Plan, the City Council shall pass a Resolution of Intention to formally consider the request and set a public hearing.

2. At a second public hearing after adoption of the Resolution of Intention, the City Council may adopt a final Resolution of Abandonment and record the document with the County Recorder. (ORD-23-0051 § 1(Exh. A), 2023)

CHAPTER 20.10 DEDICATION AND IMPROVEMENTS*

20.10.010 Dedication requirements for public street rights-of-way.

As a requirement of approval of a subdivision map, a subdivider shall make provisions for dedication of necessary public rights-of-way and necessary easements within or adjacent to the subdivision as required by the Planning Commission or the Zoning Administrator in accordance with the design standards of this part. The dedication requirements shall not be waived unless the Planning Commission or the Zoning Administrator finds that such dedication will not be necessary for present or future usage. (ORD-23-0051 § 1(Exh. A), 2023)

20.10.020 Access rights.

Where it is in the interest of public safety or welfare to limit the access to any street or highway, the City may waive direct access rights to such street or highway. In these cases, access restrictions shall be shown on the final map. Access rights to certain street classifications can be abandoned with the final map, or separate instrument except at locations as approved by the Planning Commission in accordance with Title 14 of the Municipal Code. (ORD-23-0051 § 1(Exh. A), 2023)

20.10.030 Public access to public resources.

A. In the event that a proposed subdivision is fronting upon the coastline or is traversed by any minor watercourse, channel, stream, or creek, the subdivider shall dedicate or make an irrevocable offer to dedicate a public access to such resources in accordance with the provisions of the current Subdivision Map Act. Such tentative subdivision map shall not be approved unless the Planning Commission or the Zoning Administrator finds that there is a public access by fee or by easement from a public right-of-way to land below the ordinary high tide level on any ocean coastline or bay shoreline or the bank of the water within or at a reasonable distance from the subdivision.

B. In making the determination of what shall be reasonable public access, the Planning Commission or the Zoning Administrator shall consider:

1. That access may be by highway, walking trail, bikeway, or any other means of travel;

2. The size of the subdivision;

3. The type of coastline or shoreline and the various appropriate recreational, educational, and scientific uses, including, but not limited to, diving, sunbathing, surfing, walking, swimming, fishing, beachcombing, taking of shellfish, and scientific exploration; and

4. The likelihood of trespassing on private property and reasonable means of avoiding such trespasses. (ORD-23-0051 § 1(Exh. A), 2023)

20.10.040 Improvements—Required.

A. As a condition of approval of a subdivision map, the subdivider shall improve or agree to improve public and private rights-of-way and perform land development works as required in these regulations. Improvements shall be installed or provided to the satisfaction of the Director of Public Works in accordance with the standard specifications prepared by the Director of Public Works. Such specifications shall be furnished to the subdivider. As a general rule, public and private rights-of-way improvements shall be performed after the installation of underground utilities to minimize disruption to area circulation.

B. The subdivider may be relieved from up grading existing improvements to current standards if such improvements are in good condition and failure to perform such upgrading would not

*Cross reference—Provisions on the Planning Commission, see the City Charter.

State law references—Provisions authorizing local agencies to regulate and control the design and improvement of subdivisions, Gov. Code § 66411; provisions on the "advisory agency," Gov. Code § 66415.

be detrimental to public health, safety, or welfare, as determined by the Planning Commission or the Zoning Administrator.

C. No improvements shall be required beyond those required in the approval of the tentative map. (ORD-23-0051 § 1(Exh. A), 2023)

20.10.050 Subdivision map improvements—Designated.

Through the submittal of public improvement plans that are reviewed in conjunction with the final map, the following types of improvements and facilities are verified to be sufficiently detailed to determine consistency with City Engineering Standards and other applicable requirements.

A. Drainage. Grading, drainage, and drainage structures that are necessary for public safety and the proper use of properties and public rights-of-way.

B. Public Rights-of-Way. The subdivider shall improve all rights-of-way within or abutting the subdivision, including any existing public rights-of-way and any required modification to existing improvements.

C. Sanitary Sewers. Each lot shall be provided with a separate sewer line connection to the public sewer. Any necessary sewer facilities shall be constructed as required by the Planning Commission or the Zoning Administrator.

D. Subsoil Stability. All improvements and actions recommended in the approved soil report (if required) shall be provided to the satisfaction of the Superintendent of Building and Safety.

E. Fire hydrants and other fire prevention facilities are required.

F. Utilities. All public utilities, including transmission or distribution lines serving a new subdivision shall be placed underground, except as waived by the Planning Commission or the Zoning Administrator. Support equipment for underground transmission or distribution lines such as, but not limited to, risers and meter assemblies, may be located above ground.

G. Monuments. Durable survey monuments shall be set in accordance with criteria established by the Director of Public Works and Section 20.08.165.

H. Street lighting, traffic control devices, name signs, and other street furniture such as benches, bike racks, and bus shelters. (ORD-23-0051 § 1(Exh. A), 2023)

20.10.060 Improvement plans.

A. The subdivider shall furnish all plans necessary to construct the required improvements to the Director of Public Works and Community Development Director or designees prior to approval of the final subdivision map or the certificate of compliance.

B. Improvement plans shall be prepared by or under the direction of a California registered professional engineer working within the area of expertise. (ORD-23-0051 § 1(Exh. A), 2023)

20.10.070 Improvement security—Required.

A. Any improvements, contract, or act required or authorized under any approval granted, subject to the provisions of this part, not in place prior to approval of the final map shall be secured by one of the following ways to the satisfaction of the Director of Public Works:

1. Bond or bonds by one (1) or more duly authorized corporate sureties;

2. To the satisfaction of the Director of Public Works, an instrument of credit from one (1) or more financial institutions, subject to regulation by the state or federal government and pledging that the funds necessary to carry out the act or agreement are on deposit and guaranteed for payment; or

3. A lien upon the property to be divided, created by contract between the owner and the City, if the City finds that it would not be in the public interest to require the installation of the required improvement sooner than two (2) years after the recordation of the map.

B. Any written contract of security interest in real property entered into a security for performance pursuant to Subsection A shall be recorded with the County Recorder. From the time of recordation of the written contract or document creating a security interest, a lien shall attach to the real property particularly described therein

and shall have the priority of a judgment lien in an amount necessary to complete the agreed to improvements. The recorded contract or security document shall be indexed in the grantor index to the names of all record owners of the real property as specified on the map and in the grantee index to the City which approved the map. The advisory agency may at any time release all or any portion of the property subject to any lien or security interest created herein or subordinate the lien or security interest to other liens or encumbrances, if it determines that security for performance is sufficiently secured by a lien on other property or that the release or subordination of the lien will not jeopardize the completion of agreed upon improvements.

Any such security agreement shall be in substantially the form described in Section 66499 of the Subdivision Map Act.

C. Final/Tract Map. Subdivision security agreements for final tract maps shall be authorized by the City Council and executed by the City Manager.

D. Parcel Map. The Director of Public Works is authorized to enter into, and the Director of Public Works shall execute, security agreements for improvements as required in the tentative map. (ORD-23-0051 § 1(Exh. A), 2023)

20.10.080 Improvement security—Amount.

Security to guarantee the performance of any act or agreement shall be in the following amounts:

A. An amount determined by the Director of Public Works, not less than one hundred percent (100%) of the total estimated cost of the improvement or of the act to be performed, conditioned upon the faithful performance of the act or agreement; and

An additional amount determined by the Director of Public Works not less than fifty percent (50%) of the total estimated cost of the improvement or the performance of the required act, securing payment to the contractor, his subcontractors, and to persons furnishing labor, materials, or equipment to them for the improvement or the performance of the required act.

B. An amount determined by the Director of Public Works necessary for the guarantee and warranty of the work for a period of one (1) year following the completion and acceptance thereof against any defective work or labor done or defective materials furnished. (ORD-23-0051 § 1(Exh. A), 2023)

20.10.090 Improvement security—Release.

The improvement security hereunder shall be released in the following manner:

A. Security given for faithful performance of any act or agreement shall be released upon the final completion and acceptance of the act or work, subject to the provisions of Subsection B hereof.

B. The City Council or the Director of Public Works may release a portion of the security in conjunction with the acceptance of the performance of the act or work as it progresses, upon application therefor, by the subdivider; provided, however, that no such release shall be for an amount less than thirty percent (30%) of the total improvement security given for faithful performance of the act or work, and that the security shall not be reduced to an amount less than ten percent (10%) of the total improvement security given for faithful performance until final completion and acceptance of the act or work. In no event shall the City Council or the Director of Public Works authorize a release of the improvement security which would reduce such security to an amount below that required to guarantee the completion of the act or work and any other obligation imposed by this part, the Subdivision Map Act, or the improvement agreement.

C. Security securing the payment to the contractor, subcontractors, and persons furnishing labor, materials or equipment may, after passage of the time within which claims of lien are required to be recorded pursuant to Article 3 (commencing with Section 3114) of Chapter 2 of Title 15 of Part 4 of Division 3 of the Civil Code and after acceptance of the work, be reduced to an amount not less than the total claimed by all claimants for whom claims of lien have been recorded and notice thereof given in writing to the legislative body, and if no such claims have been recorded, the security may be released in full.

D. No security given for the guarantee or warranty of work shall be released until the expiration of the period thereof. (ORD-23-0051 § 1(Exh. A), 2023)

20.10.100 Supplemental improvements for drainage, sewerage, bridges, and major thoroughfares.

A. If the City or the Water Department has adopted a local drainage plan or map as required for the imposition of fees therefor or has established an area of benefit for bridges or major thoroughfares as provided in this Title, the City or the Water Department may impose a reasonable charge on property within the area benefitted and may provide for the collection of said charge as stated herein. The City or the Water Department may enter into reimbursement agreements with a subdivider who constructs said bridges or thoroughfares and the charges collected therefore may be utilized to reimburse the subdivider as herein stated.

B. Reimbursement Agreements. If the subdivider has installed any supplemental improvements as required by the City, the subdivider shall be reimbursed for that portion of the cost of such improvements equal to the difference between the amount it would have cost the subdivider to install such improvements to serve the subdivision only and the actual cost of such improvements pursuant to this part. (ORD-23-0051 § 1(Exh. A), 2023)

CHAPTER 20.12 TENTATIVE MAPS*

20.12.010 Required.

When a final/tract map or a parcel map is required, a tentative map shall first be filed with the Community Development Department. A tentative parcel map may be waived for a project that includes but not limited to an urban lot split, as defined in Chapter 20.18, or in lieu of a lot line adjustment, as defined in Chapter 20.20, at the discretion of the decision-making body pursuant to Section 20.12.140. (ORD-23-0051 § 1(Exh. A), 2023)

20.12.020 Preparation.

A tentative map shall be prepared by a qualified California registered civil engineer or a California licensed surveyor in accordance with these regulations. Civil engineers with licenses prior to January 1, 1982 (with a license number before 33966) are authorized to practice all land surveying and engineering surveying. (ORD-23-0051 § 1(Exh. A), 2023)

20.12.030 Tentative Map form and contents.

A tentative map (PDF) shall not exceed the scale of one (1) inch equals one hundred (100) feet, and shall contain the following information:

A. The County subdivision map number - such number must be obtained from the Los Angeles County Engineer.

B. North arrow, scale, and generalized vicinity map.

C. Name and address of record owner(s), subdivider(s), and the person who prepared the map with the applicable registration or license number.

D. The locations, names and width of all roads, streets, highways, and alleys in the proposed subdivision and along the site's boundaries.

E. The boundaries of the subdivision, defined by legal description, with sufficient information to locate the property and to determine its position with respect to adjacent named or numbered subdivisions, if any.

F. The lines and approximate dimensions of all existing and proposed lots, and the number assigned to each lot, the total number of lots, and the area of each lot (net and gross). Lots shall be numbered sequentially.

G. The location and outline to scale of all existing structures, including active, inactive and abandoned oil wells within the subdivision and all structures outside the subdivision and within ten feet of the boundary lines, the distances between structures to be retained and existing or proposed

***State law references**—Provisions on maps generally, Gov. Code § 66425 et seq.; provisions on tentative maps, Gov. Code § 66452 et seq.

street and lot lines, and notations concerning whether structures are to be retained or removed.

H. Existing and proposed topographic information shall be provided and shall be tied to the City's datum. Contour lines shall have the following intervals:

1. Two-foot contour interval for ground slope between level and ten percent; and

2. Five-foot contour interval for ground slope exceeding ten percent.

I. The approximate location, height, trunk diameter and general description of any trees over three inches in diameter at the trunk, measured at a height of 48 inches above grade, with notations as to their proposed retention or removal.

J. The directions of flow of all watercourses and flood-hazard areas within and adjacent to the property involved per Federal Emergency Management Agency (FEMA) Flood Insurance Rate (FIRM) maps, and the proposed method of providing storm water, drainage, and erosion control.

K. A mapping of the flood zones from the current FEMA for tidal and fluvial flooding including the following:

1. Projected sea level rise and storm flooding for the life of the project based upon the most current science-based projection of sea level rise including a 100-year storm and wave run up.

2. Projected coastal erosion based upon a detailed assessment of site geology, sea level rise, and waves.

3. Projections of flooding shall be based on site and/or near shore bathymetry.

L. The location and extent of any known jurisdictional wetland areas or other sensitive habitat areas such as rare and endangered plant species or riparian vegetation.

M. The location of the site's scenic landscape features and scenic corridors, shorelines, ridgelines, and skylines, as defined in the City's General Plan, Local Coastal Program, and State law, and an assessment of the visibility of any future development from or within scenic corridors.

N. The locations, widths, and purposes of all existing and proposed easements for utilities, drainage, and other public purposes, shown by dashed lines, within and adjacent to the subdivision (including proposed building setback lines, if known).

O. All existing and proposed utilities including, but not limited to, size of gas and water lines, size and grade of sewer lines, locations of manholes, valve lids, fire hydrants, street trees and streetlights.

P. The locations of any existing or abandoned wells, septic leaching fields, springs, water impoundments and similar features to the extent they affect the proposed use of the property.

Q. The boundaries, size and use of existing and proposed public areas in and adjacent to the subdivision. If land is to be offered for dedication for open space park or recreation purposes or for purpose of providing public access to any public waterway or recreation area, it shall be so designated.

R. The outer boundary of the property to be subdivided shall be based on a field survey performed by a licensed land surveyor or civil engineer authorized to practice land surveying, with proper controlling monumentation and boundary establishment methods. In the event a subdivision map is not filed, a record of survey shall be filed on the exterior boundary. A copy of which shall be submitted to the Designated City Surveyor.

S. The Basis of Bearings shall be based on the California Coordinate System and be in compliance with the California Public Resource Code.

T. The licensed land surveyor or civil engineer shall note and remedy any encroachments issues prior to the filing of the subdivision map. (ORD-23-0051 § 1(Exh. A), 2023)

20.12.035 Accompanying Data.

The subdivider shall file copies of drawings, statements, and other data with the Community Development Department as applicable to the proposed tentative map, including, but not limited to the following:

A. Zoning. A statement of existing and proposed zoning and land use.

B. Site Development. A statement of proposed improvements and landscape modifications, including the estimated time of completion in relation to subdivision of the property.

C. Public/Private Areas. A description of proposed public or commonly held areas and draft open space easement agreements, if applicable.

D. Subdivision Exceptions. Any exception being requested of these regulations shall be clearly labeled and identified as to nature and purpose. A written statement justifying the exception shall be submitted by the applicant separate from the map.

E. When it is known that separate final maps are to be filed on portions of the property shown on the tentative map, the subdivision boundaries which will appear on the final maps and the sequence in which the final maps will be filed.

F. CC&Rs. Draft covenants, conditions and restrictions if they are integral to the development concept or proposed atypical requirements.

G. Drainage Study. Two (2) copies of the preliminary drainage study showing or explaining the drainage area tributary to the subdivision and a statement setting forth in detail the manner in which storm water run-off will enter the subdivision, the manner in which it will be carried through the subdivision, and the manner in which disposal beyond the subdivision boundaries will be accomplished. This shall be done in accordance with the applicable City regulations and shall be prepared by a civil engineer registered in the State of California.

H. Soils Report. A preliminary soils report (prepared by a qualified engineer registered in this State) based on adequate test borings, is required. The requirement for a preliminary soils report may be waived by the City Public Works Director in circumstances where earlier projects on the same site have provided a soils report, or where the Director determines that adequate records (or knowledge of soil qualities) exist that do not warrant a soils report.

I. Preliminary Title Report. One copy of a preliminary title report dated not more than three (3) months prior to submittal of the application.

J. Survey Data. All survey data required to review the map (i.e., preliminary title reports, closure reports, underlying deeds, map references, etc.). The Designated City Surveyor may request any survey related documents, including, but not limited to, field notes, photographs, adjustments, CAD files prior to acceptance or approval of documents.

K. Affordable Housing Plan and Statement. Unless exempt, the applicant shall submit an affordable housing statement in compliance with the City's Inclusionary Housing Requirement. The map or plans should identify location of affordable units.

L. Based on the unique circumstances at the site, other documents or information requested by the Director of Community Development to process the tentative map. (ORD-23-0051 § 1(Exh. A), 2023)

20.12.037 Special Studies.

In addition to the tentative map and accompanying data, supplemental materials may be required to be filed depending on the site's location and potential impact on various resources or consistency with City plans and policies:

A. A phase 1 cultural resources inventory to identify any potential archaeological, paleontological, or historic on-site resources, including historic artifacts and structures, and tribal cultural resources.

B. In potential noise sensitive areas identified in the General Plan Noise Element, specific site analysis by an acoustical engineer or other approved professional with qualifications in acoustic design may be required by the Community Development Director. The study shall define the noise exposure problems, conclusions, and recommendations for corrective or mitigating measures, when necessary, and opinions and recommendations covering the suitability of the site for development.

C. Sewer Capacity Study. A preliminary sewer capacity study (prepared by a qualified engineer registered in this State) based on either sewer system model results, or flow monitoring with a sewer capacity study approved by the Long Beach Water Department (LBWD). The capacity study shall ensure that the sewer system can accommodate a proposed development, and if not, identify needed improvements required for the development.

D. Hydrology Report. In certain areas where there is a known high water table, a hydrologic report shall be prepared that evaluates the existing water table and identifies potential issues with new development. The report shall be prepared by a qualified geologist or hydrologist and shall include recommendations for site preparation, foundation design, and other strategies to offset potential impacts.

E. Septic Systems. Septic Tanks and Leach Fields shall be abandoned or removed in accordance with plans approved by the Community Development Department and the Health Department. All sewage shall be disposed of by an approved connection to the appropriate Public sewer system.

F. Potable and/or Recycled Water System Analysis: A preliminary potable and/or recycled system analysis shall be prepared by a qualified engineer to evaluate existing system capacity in the area and improvements needed to serve the new demand created by the project to the approval of LBWD.

G. Maps for condominium projects shall indicate the address of the property and the number, size and location of proposed dwelling units, parking spaces, and private or public open spaces. For all condominium projects, the floor area of each floor shall be shown in proper scale and location together with the plan view of each ownership unit. Further information regarding condominium projects and other common interest subdivisions is included in Chapter 20.30. (ORD-23-0051 § 1(Exh. A), 2023)

20.12.040 Completeness determination required for filing.

A. If the tentative map or the accompanying drawings, statements or other data are found to be incomplete or incorrect, the subdivider shall be advised in writing of the changes or additions within 30 days.

B. A tentative map shall not be deemed complete for processing until it complies with all provisions of this Section and any additional information as required by the Director of Community Development. (ORD-23-0051 § 1(Exh. A), 2023)

20.12.050 Review by other City departments and agencies.

The Planning Bureau shall transmit copies of the tentative map and other required information to each of the following: Department of Public Works, Building Bureau, Fire Department, Energy Resources Department, Water Department, utility companies, and to such other agencies that it determines may be affected or may have an interest in the proposed subdivision.

These departments or agencies shall submit their written reports and recommendations within the time specified by the Planning Bureau; such time limit shall not be more than fifteen (15) working days from the date of the transmittal letter. Failure of any department or agency to respond within the prescribed time limits shall be deemed to mean that it has no recommendations and no objections to the proposed subdivision. If requested, the Planning Bureau may grant an extension of time to respond, especially if the proposed subdivision is exceptionally complicated. (ORD-23-0051 § 1(Exh. A), 2023)

20.12.060 Staff recommendations.

The Community Development Department shall prepare staff recommendations in writing. A copy of this report shall be available to the Planning Commission or the Zoning Administrator and the subdivider at least three (3) days prior to the date set for the hearing. (ORD-23-0051 § 1(Exh. A), 2023)

20.12.070 Hearing—Time to be held.

Within fifty (50) days after a tentative map has been deemed complete for processing consistent with the State Permit Streamlining Act, the Planning Commission or the Zoning Administrator shall consider the tentative map at a regularly scheduled public hearing. Such time period may be extended by mutual consent of the subdivider and the Community Development Department. As appropriate and to increase processing efficiency, any Site Plan Review, Variance, or other

related planning entitlement related to the same project as the tentative map request should be processed together and consolidated on applicable hearing agendas. (ORD-23-0051 § 1(Exh. A), 2023)

20.12.080 Hearing—Notice.

When a provision of this title requires notice of a public hearing, notice shall be given in all of the following ways, consistent with the review processes described in Sections 20.04.020, 20.04.030, 20.04.040, and 20.04.070:

A. Notice of the hearing shall be mailed or delivered at least 14 days prior to the hearing to the owner of the subject real property as shown on the latest equalized assessment roll. Instead of using the assessment roll, the local agency may use records of the county assessor or tax collector if those records contain more recent information than the information contained on the assessment roll. Notice shall also be mailed to the owner's duly authorized agent, if any, and to the project applicant.

B. When the Subdivision Map Act (Division 2 [commencing with Section 66410] of Title 7) requires notice of a public hearing to be given pursuant to this section, notice shall also be given to any owner of a mineral right pertaining to the subject real property who has recorded a notice of intent to preserve the mineral right pursuant to Section 883.230 of the Civil Code.

C. Notice of the hearing shall be mailed or delivered at least 14 days prior to the hearing to each local agency expected to provide water, sewage, streets, roads, schools, or other essential facilities or services to the project, whose ability to provide those facilities and services may be significantly affected.

D. Notice of the hearing shall be mailed or delivered at least 14 days prior to the hearing to all owners of real property as shown on the latest equalized assessment roll within 300 feet of the real property that is the subject of the hearing. In lieu of using the assessment roll, the local agency may use records of the county assessor or tax collector which contain more recent information than the assessment roll. If the number of owners to whom notice would be mailed or delivered pursuant to this paragraph or paragraph (A) is greater than 1,000, a local agency, in lieu of mailed or delivered notice, may provide notice by placing a display advertisement of at least one-eighth page in at least one newspaper of general circulation within the local agency in which the proceeding is conducted at least 14 days prior to the hearing.

E. The notice shall include the date, time, and place of a public hearing, the identity of the hearing body or officer, a general explanation of the matter to be considered, and a general description, in text or by diagram, of the location of the real property, if any, that is the subject of the hearing. Consistent with Municipal Code Section 21.21.304, all notices shall contain as a minimum, the following information:

1. The applicant's name;
2. The filing date;
3. The case number for the project;
4. The location of the project, including an indication of whether it is in the coastal zone;
5. An indication of whether the project is appealable to the Coastal Commission;
6. A description of the project;
7. The reason for the public hearing;
8. The date, time and place of the public hearing;
9. The general procedures for the hearing and the receipt of public comments;
10. The means for appeal, including an appeal to the Coastal Commission when applicable; and
11. A statement stating substantially the following:

"If you challenge the action in court, you may be limited to raising only those issues you or someone else raised at the public hearing described in this notice, or issues raised via written correspondence delivered to the (public entity conducting the hearing) at or prior to the public hearing".

If the notice is mailed or delivered pursuant to paragraph D above, the notice shall also either be:

1. Published pursuant to Section 6061 in at least one newspaper of general circulation within the local agency which is conducting the proceeding at least 10 days prior to the hearing; or

2. Posted at least 14 days prior to the hearing in at least three public places within the boundaries of the local agency, including one public place in the area directly affected by the proceeding.

F. All notices shall be posted to the City's website, along with other forms of electronic communication that are specified with an approved electronic communications policy. In addition to the notice required by this section, a local agency may give notice of the hearing in any other manner it deems necessary or appropriate. (ORD-23-0051 § 1(Exh. A), 2023)

20.12.090 Planning Commission or Zoning Administrator—Action.

The Planning Commission or the Zoning Administrator shall determine whether a tentative map should be approved, conditionally approved, or disapproved. (ORD-23-0051 § 1(Exh. A), 2023)

20.12.100 Planning Commission or Zoning Administrator—Requirements for approval of tentative parcel and tract maps.

The Planning Commission or the Zoning Administrator shall approve a tentative map if the map complies with State and local regulations and if all of the following findings are made:

A. That the proposed map design and improvements is consistent with the applicable general plan, specific plans, the Zoning Ordinance, and does not violate local or state laws regarding subdivisions;

B. That the site is physically suitable for the type of development, including the proposed density;

C. That the design of the subdivision or the proposed improvements are not likely to cause substantial environmental damage or substantial and avoidable injury to fish and wildlife or their habitat;

D. That the design of the subdivision or the type of improvement is not likely to cause serious public health or safety problems;

E. That the design of the subdivision or the type of improvements will not conflict with easements acquired by the public at large for access through or use of property within the proposed subdivision; and

F. That the design of the subdivision or the type of improvements is consistent with the Local Coastal Plan (LCP) as it considers projected sea level rise, slope stability, hazards and potential storm flooding for the life of the project based on available FEMA information. (ORD-23-0051 § 1(Exh. A), 2023)

20.12.110 Planning Commission—Conditional approval.

The Planning Commission or the Zoning Administrator shall impose those requirements and conditions necessary to bring a proposed subdivision into full compliance with these regulations and other City ordinances. (ORD-23-0051 § 1(Exh. A), 2023)

20.12.120 Planning Commission or Zoning Administrator—Findings required for modifications or exceptions.

The Planning Commission or the Zoning Administrator may grant modifications or exceptions to the requirements of these regulations if it makes any of the following findings:

A. The land involved in the subdivision is unusual because of the size, shape, or topographical conditions;

B. The improvement required would create conflicts with City plans, policies, and the existing pattern of improvement in the area;

C. Conformance with all the requirements would impose an unnecessary hardship upon the subdivider;

D. The subdivision design is of such a unique nature that it will result in a healthful, convenient, efficient, and attractive environment without sacrificing light, air, or any other factors which comprise a successful subdivision;

E. The requested exception is supportable given that the overall design will result in beneficial impacts by its incorporation of sustainable features to improve energy efficiency, and other

improvements to enhance mobility within the development for pedestrians and alternate modes of transportation;

F. That the design of the subdivision or the proposed improvements are not likely to cause substantial environmental damage or substantial and avoidable injury to fish and wildlife or their habitat;

G. The requested exception will be consistent with the Local Coastal Plan (LCP), because it considers projected sea level rise and potential storm flooding for the life on the project based on available FEMA information.

Such findings shall be made in writing and shall be presented at the public hearing. (ORD-23-0051 § 1(Exh. A), 2023)

20.12.130 Planning Commission or Zoning Administrator—Disapproval.

The Planning Commission or the Zoning Administrator shall deny a tentative map if it cannot make all of the required findings listed in Section 20.12.100. Such findings shall be made in writing and shall be presented at the public hearing. (ORD-23-0051 § 1(Exh. A), 2023)

20.12.140 Zoning Administrator—Waiver of final parcel map.

A. The subdivider may request a waiver of the requirement to file a (final) parcel map for:

1. Subdivisions that meet the parameters of Sections 66426, 66428 and 66428.1 of the Subdivision Map Act;

2. A new condominium project on a single parcel that was previously mapped and monumented in a manner satisfactory to the Designated City Surveyor in accordance with Section 66428(b) of the Subdivision Map Act;

3. A condominium conversion project creating four (4) or fewer condominium units;

4. A new commercial or industrial condominium project on a single parcel;

5. Conversion of existing development to four or fewer commercial or industrial condominiums;

6. The new commercial or industrial portion of a mixed-use condominium project on a single parcel; or

7. An Urban Lot Split.

B. Required Findings. The Zoning Administrator may determine that the recordation of a (final) parcel map be waived after a tentative map is approved if it makes all of the following findings:

1. No unusual impact to public health, safety, or welfare is anticipated.

2. All required dedication of public rights-of-way and public improvements have been provided for.

3. The parcel map shall consist of four (4) lots/units or less, unless found to be exempt.

4. The requested waiver will be consistent with the Local Coastal Plan (LCP), because it considers projected sea level rise and potential storm flooding for the life on the project based on available FEMA information.

5. If a tentative map is for condominium conversion, all requirements as specified in the condominium conversion regulations shall be complied with in full.

C. Site Plan. When a parcel map is waived, the applicant shall submit a site plan with the Department of Public Works and shall meet all criteria established by the Director of Public Works. A record of survey is not required as a condition of approval. The site plan may trigger a record of survey in accordance with California Business and Professions Code section 8762.

The site plan shall be consistent with the current California Building Code Section 107.2.5 stating a site plan shall have an accurate boundary.

D. Certificate of Compliance. When a parcel map is waived, a certificate of compliance shall be filed for recording with the County Recorder when the site plan is approved by the Director of Public Works and when there is compliance with all requirements.

E. Extension of Time to File Parcel Map Waiver. Under some circumstances, a subdivider

may need additional time to process a request to waive a tentative parcel map. The following process is established to handle these requests:

1. Application for a time extension shall be made in writing to the Community Development Department prior to the expiration date of the tentative map.

2. The time extension shall be approved if the Community Development Director or the Zoning Administrator makes any of the following findings:

a. The subdivider has made reasonable progress toward satisfying project conditions; and

b. Extenuating circumstances require additional time for the subdivider to respond to satisfying project conditions.

3. Time extension requests shall be limited to one-year increments. (ORD-23-0051 § 1(Exh. A), 2023)

20.12.150 Tentative map withdrawal.

Any subdivider or record owner of property may withdraw a tentative map at any time. Notice of withdrawal shall be given to the Community Development Director or the Zoning Administrator in writing. Upon receipt of such notice, the tentative map shall be officially withdrawn. Upon withdrawal, a record of survey shall be required and monuments set to replace those destroyed, damaged or missing. (ORD-23-0051 § 1(Exh. A), 2023)

20.12.160 Tentative map revisions—Prior to approval.

After a tentative map has been deemed complete, no revisions shall be permitted, unless the subdivider agrees to extend the time to a date acceptable to the Planning Commission or the Zoning Administrator, within which action must be taken on the map, provided that the extension not exceed fifty (50) days after receipt of the revision. (ORD-23-0051 § 1(Exh. A), 2023)

20.12.170 Tentative map revisions—After approval.

A. After approval of a tentative map, any revised map shall comply with all regulations in effect at the time such revised map is filed.

B. When a tentative map has been approved, no other subdivider shall file a different tentative map for the same parcel of land without the express written consent of the current property owner of record and/or the original subdivider unless the previous tentative map has expired.

C. The approval or conditional approval of any revised tentative map shall supersede and nullify all previously approved tentative maps that pertain to the same parcel of land.

D. After approval or conditional approval of a tentative map and prior to the recordation of the final map, any correction or amendment shall be processed as follows:

1. Minor corrections may be approved by the Community Development Director or designee under the following circumstances:

a. No additional lots or units are created.

b. The changes are in substantial conformance with the original tentative map approval.

c. The proposed changes are consistent with this title, the zoning ordinance, applicable building codes, the General Plan, and the Subdivision Map Act.

2. Corrections or changes that are not deemed by the Community Development Director or designee to be minor shall be reviewed by either the Zoning Administrator for parcel maps, or the Planning Commission for tentative subdivision maps. The subdivider shall provide the appropriate modification application, materials, and applicable fees. The Zoning Administrator or the Planning Commission may grant a modification to the requirements and conditions if findings are made to document consistency with the original approval.

3. Any revisions approved through the prescribed processes identified in paragraphs 1 and 2 above shall not affect the time limit for recording a final map or a parcel map as prescribed by the Subdivision Map Act or these regulations. (ORD-23-0051 § 1(Exh. A), 2023)

20.12.180 Tentative map expiration.

A. An approved or conditionally approved tentative map shall expire thirty-six (36) months after its approval, except when a time extension

has been granted by the Community Development Director or designee or meets the terms allowed by 66452.6.

B. Failure to record a final map before a tentative map expires shall terminate all proceedings. Once a tentative map has expired, no further subdivision action shall take place until a new tentative map is filed. Upon withdrawal, a record of survey shall be required and monuments set to replace those destroyed, damaged or missing.

C. Any tentative map approved between January 1, 2018, and the effective date of this ordinance shall be effective for a period of forty-eight (48) months from the date of approval issuance. As appropriate and to increase processing efficiency, any Site Plan Review, Variance, or other related planning entitlement expiration dates related to the same project as the tentative map request should be extended to coincide with the tentative map expiration date. (ORD-23-0051 § 1(Exh. A), 2023)

20.12.190 Time extensions.

A. Application for a time extension shall be made in writing to the Community Development Department prior to the expiration date of the tentative map.

B. The time extension shall be approved if the Community Development Director or the Zoning Administrator makes any of the following findings:

1. The subdivider has made reasonable progress toward satisfying project conditions;

2. Extenuating circumstances as documented in the map extension request have delayed filing of the final map; and

3. The tentative map remains consistent with the zoning and goals of the general plan.

C. Time extension requests shall be limited to year increments and can be customized for a period exceeding one year if the maximum extension period identified in Section D below is not exceeded.

D. Consistent with Subdivision Map Act Sections 66452.6 (e) and 66463.5(c), the maximum time of all extensions granted shall be 72 months (six years). (ORD-23-0051 § 1(Exh. A), 2023)

CHAPTER 20.14 VESTING TENTATIVE MAPS

20.14.010 Applicability.

Any tentative map, whether a parcel or a tract map, may be a vesting map. (ORD-23-0051 § 1(Exh. A), 2023)

20.14.020 Filing and processing.

The tentative maps must have the term "vesting" clearly stated on the map. All other procedures applicable to other tentative maps in Chapter 20.12 shall apply. (ORD-23-0051 § 1(Exh. A), 2023)

20.14.030 Development rights.

A. The approval or conditional approval of a vesting subdivision map shall confer a right to proceed with the development in substantial compliance with the approved tentative map.

B. The rights conferred by the vesting tentative map shall expire if a final map is not approved prior to the expiration of the vesting tentative map. Submittal of a grading or building permit for the project associated with the vesting tentative map will keep the map active until the final map is approved and recorded. Regular inspections consistent with the requirements of the grading or building permit will need to occur to keep the vesting tentative map active.

C. An approved vesting tentative map shall not limit the City from imposing reasonable conditions on subsequent required approvals or permits necessary for the development and authorized by applicable ordinances, policies, and standards in effect at the time that the tentative map application was deemed complete. (ORD-23-0051 § 1(Exh. A), 2023)

20.14.040 Vesting Tentative Map expiration.

The approval or conditional approval of a vesting tentative map shall expire at the end of the same time period, and shall be subject to the same extensions established by the subdivision regula-

tions in Section 20.12.190 for the expiration of the approval or conditional approval of a tentative map. (ORD-23-0051 § 1(Exh. A), 2023)

CHAPTER 20.16 FINAL MAPS*

20.16.010 Required when.

A final/tract map shall be required for all subdivisions for which a tentative tract map is required. A (final) parcel map shall be required for all subdivisions for which a (tentative) parcel map is required unless waived as provided in these regulations. (ORD-23-0051 § 1(Exh. A), 2023)

20.16.020 Content and form.

The content and form of each final tract map or final parcel map shall be prepared in accordance with the Subdivision Map Act, these regulations, and criteria established by the Community Development Director and the Public Works Director. (ORD-23-0051 § 1(Exh. A), 2023)

20.16.030 Filing.

A. The subdivider shall file a final/tract map or a parcel map with the Department of Public Works along with all other required documents.

B. No final/tract map or parcel map shall be accepted if the tentative map has expired.

C. Should the map or other accompanying documents, fees, or materials be found to be incomplete or incorrect in any respect, the subdivider shall be informed of the corrections, changes, or additions that must be made. (ORD-23-0051 § 1(Exh. A), 2023)

20.16.040 Fee.

A. Upon submission of a final tract map or final parcel map for processing, the subdivider shall pay to the City a processing fee in an amount prescribed by a City Council resolution.

B. If a final tract map or final parcel map is submitted to the County Engineer for checking under an agreement for examination of tract maps and parcel maps, the subdivider shall pay a map checking fee to the County Engineer in addition to all other fees and charges required by law. This fee shall be equal to the fee established by the County of Los Angeles for checking tract and parcel maps. If a final tract map or final parcel map is submitted to a professional consultant for checking under an agreement for examination of tract maps and parcel maps with the City, the subdivider shall pay a map checking fee to the City to cover fees for the professional consultant in addition to all other fees and charges required by law. (ORD-23-0051 § 1(Exh. A), 2023)

20.16.050 Certifications.

A. No final tract map or final parcel map shall be certified by the departments or agencies unless all conditions and requirements as prescribed by the Planning Commission or the Zoning Administrator or the Designated City Surveyor have been met.

B. The required certificates and acknowledgements or appropriate combinations thereof shall appear on the title sheet in accordance with Sections 66436 or 66445 of the Government Code (Subdivision Map Act) and shall also contain, as applicable:

1. The Community Development Director's certificate: The Community Development Director shall certify that the final map is consistent with the tentative map, with the General Plan of the City, with the California Environmental Quality Act, and with other special requirements imposed by the City.

2. The Director of Public Works' certificate: The Director of Public Works shall certify that the map conforms with the requirements of the Subdivision Map Act and local ordinance.

3. The City Treasurer's and Director of Public Work's certificate: The City Treasurer and the Director of Public Works shall certify that there are no unpaid special assessments.

4. The Designated City Surveyor's certificate: The Designated City Surveyor shall certify that the subdivision as shown is substantially as it

*State law reference—Provisions on final maps, Gov. Code § 66433 et seq.

appeared on the tentative map, and that any applicable local ordinances at the time of tentative map approval have been complied with.

5. All other affidavits, certificates, acknowledgements, endorsements, and notarial seals as required by the Subdivision Map Act and these regulations. (ORD-23-0051 § 1(Exh. A), 2023)

20.16.060 Parcel map—Approval.

After parcel map is filed, the Designated City Surveyor shall perform a field inspection of all monuments found and set on the map. Monuments shall be set at the time of filing. The monuments shall occupy or be reset at each corner upon completion of the project.

The Director of Public Works shall consider and approve the map when all requirements of the map have been satisfied and adequate security provisions have been made to guarantee compliance with those requirements. The Director of Public Works shall also accept or reject, on behalf of the public, any real property offered for dedication for public use. (ORD-23-0051 § 1(Exh. A), 2023)

20.16.070 Final/tract map—Approval.

After final/tract map is filed, the Designated City Surveyor, perform a field inspection of all monuments found and set on the map. Monuments shall be set at the time of filing. At no time shall monuments be deferred until the final improvements have been accepted for the subdivision. The monuments shall occupy or be reset at each corner upon completion of the project.

The Director of Public Works and Designated City Surveyor shall review the final tract map to confirm it complies with the requirements of the Subdivision Map Act and local ordinance and there are no unpaid special assessments. Once compliance is confirmed, the Director of Public Works shall transmit the map to the City Council. Within thirty (30) days after filing or at its next regular meeting after the meeting at which it receives the map, whichever is later, the Council shall consider and approve the map if it finds that all requirements of the map have been satisfied and adequate financial security provisions have been made to guarantee compliance with those requirements. (ORD-23-0051 § 1(Exh. A), 2023)

20.16.080 The City Clerk's certificate.

The City Clerk shall certify approval of Council and the action of Council upon any offer of dedication. (ORD-23-0051 § 1(Exh. A), 2023)

20.16.090 Recording.

Following approval of the final tract or parcel map, the Director of Public Works shall send the map to the County Engineer for recordation by the County Recorder. (ORD-23-0051 § 1(Exh. A), 2023)

20.16.100 Amendments permissible with certificate of correction or certificate of compliance.

After a final/tract map or parcel map is filed in the office of the County Recorder, such a recorded final map may be modified for the purposes of correcting an error or omission shown on the recorded map, or dissolving a recorded condominium map.

A. To Correct an Error or Omission. A final map may be amended by recording a certificate of correction or an amending map to correct an error or omission in accordance with the State Subdivision Map Act. These errors or omissions may include lot numbers, acreage, street names, identification of adjacent record maps, reference of previous survey information, the description of the real property, or the location or character of any monument.

An amending map or certificate of correction shall be prepared and signed by a registered civil engineer or a licensed land surveyor and shall be approved by the Community Development Director and the City Engineer.

The amended map cannot alter lines of title. In the event a title line is incorrectly established the subdivider will be required to file a subdivision map. The approved existing, unexpired, tentative map and conditions of approval may be applied to the new map.

B. To Dissolve a Previously Recorded Condominium Map. A final map may be amended by

recording a certificate of compliance to dissolve a previously recorded condominium map if the current property owner(s) finds that there is no need to maintain the subject property for a condominium purpose; instead, the owner(s) wishes to retain the property as a single ownership.

A revision of acreage subdivision map may be required according to the Subdivision Map Act.

To request such an amendment, the applicant shall submit an application to the Community Development Department with the following information:

1. A current title report providing the legal description of the properties included in the application; and

2. Signatures of the present fee owner(s) of the property.

Upon receiving a complete application, the requested amendment will be scheduled for a Zoning Administrator public hearing. At the scheduled hearing, the Zoning Administrator shall act to approve or disapprove the requested amendment. After the requested amendment is approved, the City will record a certificate of compliance indicating that the previously recorded condominium is officially dissolved. (ORD-23-0051 § 1(Exh. A), 2023)

CHAPTER 20.18 URBAN LOT SPLIT (PARCEL MAP)

20.18.010 Purpose and intent.

A. The purpose of this chapter is to implement California Government Code Section 66411.7 to provide an owner of a parcel zoned entirely for single-family residential use an additional method to subdivide the parcel through an urban lot split parcel map for the purpose of housing development;

B. An urban lot split parcel map is defined as the subdivision of an existing legal lot zoned R-1 (Single-Family District) under Chapter 21.31 of the Zoning Regulations to create no more than two (2) new parcels in accordance with the requirements in this chapter;

C. Urban lot split shall be used synonymously with a parcel map. A record data parcel map is prohibited. The parcel map shall be based on a field survey;

D. With respect to a division of land into four or fewer parcels, where dedications or offers of dedications are not required, the statement shall be signed and acknowledged by the subdivider only. If the subdivider does not have a record title ownership interest in the property to be divided, the local agency may require that the subdivider provide the local agency with satisfactory evidence that the persons with record title ownership have consented to the proposed division. For purposes of this paragraph, "record title ownership" means fee title of record unless a leasehold interest is to be divided, in which case "record title ownership" means ownership of record of the leasehold interest. Record title ownership does not include ownership of mineral rights or other subsurface interests that have been severed from ownership of the surface;

E. The provisions of this Chapter shall be the primary regulations for the subdivisions of land for and development of two (2) unit residential developments under Cal. Gov't Code Sections 66411.7 and 65852.21. To the extent that an aspect of the subdivision of land for or development of two (2) unit residential developments under Sections 66411.7 and 65852.21 is not addressed by this Chapter, the provisions of the subdivision code and applicable Zoning Regulations shall apply, except where this would conflict with Sections 66411.7 and 65852.21;

F. In the event of a conflict between this Chapter and another provision of the Long Beach Municipal Code, as it applies to the subdivision of land for or development of two (2) unit residential developments under Cal. Gov't Code Sections 66411.7 and 65852.21, this Chapter shall prevail; and

G. No exceptions to the standards in this section shall be requested or granted, except as allowed per Long Beach Municipal Code Section 20.08.020. (ORD-23-0051 § 1(Exh. A), 2023)

20.18.020 Urban lot split application and procedures.

A. An application for an urban lot split shall be filed by the property owner or an agent of the property owner with the Planning Bureau on the city's approved form, subject to a fee in an amount established by City Council resolution. An application shall be completed to the satisfaction of the Planning Bureau to be considered. The city will inform the applicant in writing of any incompleteness within thirty (30) days after an application is submitted;

B. An application shall include an affidavit stating that the applicant intends to occupy one of the housing units as their principal residence for a minimum of three (3) years from the date of the approval of the urban lot split. An affidavit shall not be required of an applicant that is either a "community land trust" (as defined by Rev. & Tax Code § 4 02.1 (a)(11)(C)(ii)) or a "qualified nonprofit corporation" (as defined by Rev. & Tax Code § 214.15);

C. An application for an urban lot split shall meet the requirements set forth in this Chapter;

D. The City shall act upon an application for an urban lot split without a discretionary review, public hearing, or Site Plan Review Committee Review, within fifty (50) calendar days after a complete application for an urban lot split is filed. The time limit specified in this chapter may be extended by mutual consent of the applicant and the City;

E. The Zoning Administrator shall ministerially approve or deny the application for an urban lot split. The decision shall be final, and the Zoning Administrator shall state in written findings the reasons for approval or denial. (ORD-23-0051 § 1(Exh. A), 2023)

20.18.030 Review by other City departments and agencies.

A. The Planning Bureau shall transmit copies of the urban lot split and other required information to each of the following: Department of Public Works, Building & Safety Bureau, Fire Department, Energy Resources Department, Water Department, any other concerned utilities, and to such other agencies that it determines may be affected or may have an interest in the proposed subdivision;

B. These departments or agencies shall submit their written reports, corrections, and recommendations within the time specified by the Planning Bureau. Such time limit shall not be more than fifteen (15) working days from the date of the transmittal letter. (ORD-23-0051 § 1(Exh. A), 2023)

20.18.040 Concurrent processing with other ministerial permits.

A. No development, including but not limited to grading or vegetation removal, shall commence on any lot, prior to, concurrent, or subsequent to an urban lot split, unless a valid building permit has been issued for the construction of an Accessory Dwelling Unit or Junior Accessory Dwelling Unit;

B. A building permit shall not be issued for development on a parcel where an urban lot split is proposed, until the urban lot split is accepted and the map is recorded by the County of Los Angeles, unless the proposed project would conform to the Subdivision Ordinance and the City's policies and ordinances implementing Cal. Gov't Code Sections 65852.2, 65852.21, and 65852.22 without recordation of the urban lot split. (ORD-23-0051 § 1(Exh. A), 2023)

20.18.050 Preparation.

A. An urban lot split shall be prepared by a qualified California registered civil engineer or a California licensed surveyor in accordance with the Subdivision Regulations and the Subdivision Map Act. Civil engineers with licenses prior to January 1, 1982 (with a license number before 33966) are authorized to practice all land surveying and engineering surveying. (ORD-23-0051 § 1(Exh. A), 2023)

20.18.060 Coastal zone.

A. An application for an urban lot split in the coastal zone shall be processed in conformance

with Section 21.25.902 of the Long Beach Municipal Code, subject to separate fees established by City Council resolution;

B. The proposed subdivision shall be consistent with the policies of the City's certified Local Coastal Program and the Coastal Act;

C. A parcel map shall not be submitted for processing or approval from the Department of Public Works until procedures outlined in Division IX of Chapter 21.25 of the Long Beach Municipal Code has been completed. (ORD-23-0051 § 1(Exh. A), 2023)

20.18.070 Urban lot split development standards.

The proposed subdivision shall conform to the following standards:

A. An urban lot split shall be prepared in accordance with requirements set forth in Section 20.12.030 of the Subdivision Regulations, Cal. Gov't Code Sections 66410 et. Seq., 66444—66450 and the applicable sections of this Chapter;

B. An urban lot split shall not be approved except in conjunction with a concurrently submitted application for building permits for a two (2) unit residential development pursuant to Cal. Gov't Code Section 65852.21 and subject to the provisions of Chapter 21.31 and Section 20.18.040 as applicable;

C. Development on the resulting parcels shall be limited to the residential development approved in the concurrently submitted building permit applications;

D. The parcel shall be located entirely within a Single-Family (R-1) Zoning District;

E. The site shall not be located within a City Historic District, on a designated Historic Landmark property, or included on the State Historic Resources Inventory;

F. The urban lot split will subdivide an existing parcel to create no more than two (2) new parcels;

G. The parcel proposed for subdivision shall not result in more than two (2) dwelling units of any type per parcel involved in an urban lot split, including principal dwelling units, ADUs and JADUs, and residential development permitted by Cal. Gov't Code Section 65852.21;

H. One (1) principal unit is required per parcel;

I. Neither the owner of the parcel being subdivided nor any person acting in concert with the owner shall have previously subdivided an adjacent parcel under the provisions of this Chapter or Cal. Gov't Code Section 66411.7. Adjacent means situated near or close by. Adjacent includes real property across alleys, streets, public waterways or other public property;

J. The parcel proposed for subdivision shall not have been established through a prior exercise of an urban lot split as provided for by this Chapter or Cal. Gov't Code section 66411.7;

K. The land uses proposed for the parcels created by the urban lot split shall be residential uses only (no mixed-use or commercial or other non-residential uses);

L. Rental terms of any unit created by the subdivision shall not be less than thirty (30) consecutive days, nor shall rental terms allow termination of the tenancy prior to the expiration of at least one (1) thirty (30) day period occupancy by the same tenant;

M. If the parcel is within the Coastal Zone, the appropriate Coastal approval shall be obtained as required by Section 20.18.060, Division IX of Chapter 21.25, and the Coastal Act prior to approval and recordation of the final parcel map;

N. The owner shall not have withdrawn rent or price-controlled accommodations from rent or lease on this parcel within fifteen (15) years prior to the date of application for the proposed project;

O. The proposed housing development shall not require the demolition or alteration (defined as demolition or alteration of more than 25% of the existing exterior walls) of any of the following types of housing:

1. Housing that is subject to a recorded covenant, ordinance, or law that restricts rents to levels affordable to persons and families of moderate, low, or very low income.

2. Housing that is subject to any form of public agency rent or price control.

3. Housing that has been occupied by a tenant in the last three years. (ORD-23-0051 § 1(Exh. A), 2023)

20.18.080 Disapproval of an urban lot split.

A proposed urban lot split subdivision shall not be approved if any of the following apply:

A. The site is located within wetlands, as defined in US Fish and Wildlife Service Manual, Part 660, PW 2 (June 21, 1993);

B. The site is located on a hazardous waste site that is listed per Cal. Gov't Code section 65962.5 or designated by Cal. Health & Safety Code section 25356;

C. The site is located within a delineated earthquake fault zone as determined by the State Geologist in any official maps published by the State Geologist, unless the development complies with applicable seismic protection building code standards adopted by the California Building Standards Commission under the California Building Standards Law;

D. Based on a preponderance of the evidence, the building official finds that the proposed housing development project would have a specific, adverse impact, as defined and determined in paragraph (2) of subdivision (d) of Cal. Gov't Code Section 65589.5, upon public health and safety or the physical environment and for which there is no feasible method to satisfactorily mitigate or avoid the specific, adverse impact;

E. The site is located within a special flood hazard area for the 100-year flood (any Zone A or Zone V), unless one of the two below conditions is satisfied:

1. The site has been subject to a Letter of Map Revision prepared by the Federal Emergency Management Agency and issued to the local jurisdiction, or;

2. The site meets Federal Emergency Management Agency requirements necessary to meet minimum flood plain management criteria of the National Flood Insurance Program pursuant to Part 59 (commencing with Section 59.1) and Part 60 (commencing with Section 60.1) of Subchapter B of Chapter I of Title 44 of the Code of Federal Regulations.

F. The site is located within a regulatory floodway as determined by the Federal Emergency Management Agency in any official maps published by the Federal Emergency Management Agency, unless the development has received a no-rise certification in accordance with Section 60.3(d)(3) of Title 44 of the Code of Federal Regulations;

G. The site is located on lands identified for conservation in an adopted natural community conservation plan pursuant to the Natural Community Conservation Planning Act (Chapter 10 (commencing with Section 2800) of Division 3 of the Fish and Game Code), habitat conservation plan pursuant to the federal Endangered Species Act of 1973 (16 U.S.C. Sec. 1531 et seq.), or other adopted natural resource protection plan;

H. The site is located within habitat for protected species identified as candidate, sensitive, or species of special status by state or federal agencies, fully protected species, or species protected by the federal Endangered Species Act of 1973 (16 U.S.C. Sec. 1531 et seq.), the California Endangered Species Act (Chapter 1.5 (commencing with Section 2050) of Division 3 of the Fish and Game Code), or the Native Plant Protection Act (Chapter 10 (commencing with Section 1900) of Division 2 of the Fish and Game Code);

I. The site is located on lands under conservation easement;

J. The proposed housing development would result in fewer dwelling units than would otherwise be allowed on the site by the General Plan Land Use Element, in accordance with the State's No Net Loss requirements. (ORD-23-0051 § 1(Exh. A), 2023)

20.18.090 Urban lot split form, contents and accompanying data.

An urban lot split shall be prepared in accordance with requirements set forth in Chapter 20.12 of the Long Beach Municipal Code, Cal. Gov't Code Sections 66410 et. Seq., 66444- 66450, and

this Chapter. The map shall contain the following supplemental information to establish compliance with the construction plans and all provisions of this Code and applicable State law:

A. Preliminary title report of the property and shall be no more than ninety (90) days old from the time of application submittal;

B. The size of each sheet shall be 18 by 26 inches or 460 by 660 millimeters. A marginal line shall be drawn completely around each sheet, leaving an entirely blank margin of one inch or 025 millimeters. The scale of the map shall be large enough to show all details clearly and enough sheets shall be used to accomplish this end. The particular number of the sheet and the total number of sheets comprising the map shall be stated on each of the sheets, and its relation to each adjoining sheet shall be clearly shown:

1. The County subdivision map number. Such number must be obtained from the Los Angeles County Engineer.

2. The boundaries of the subdivision, defined by legal description, with sufficient information to locate the property and to determine its position with respect to adjacent named or numbered subdivisions, if any. The boundary shall be based upon a field survey. Record data parcel maps are prohibited.

3. Total area (in acreage and square feet) of each proposed lot.

4. The directions of flow of all watercourses and flood-hazard control areas within and adjacent to the property involved per Federal Emergency Management Agency (FEMA) Flood Insurance Rate (FIRM) maps, and the proposed method of providing storm water, drainage, and erosion control.

5. A mapping of the flood zones from the current FEMA for tidal and fluvial flooding including the following:

a. Projected sea level rise and storm flooding for the life of the project based upon the most current science-based projection of sea level rise including a one hundred (100) year storm and wave run up.

b. Projected coastal erosion based upon a detailed assessment of site geology, sea level rise, and waves.

c. Projections of flooding shall be based on site and/or near shore bathymetry.

6. The location and extent of any known jurisdictional wetland areas or other sensitive habitat areas such as rare and endangered plant species or riparian vegetation;

7. The location of the site's scenic landscape features and scenic corridors, shorelines, ridgelines, and skylines, as defined in the City's General Plan, Local Coastal Program, and State law, and an assessment of the visibility of any future development from or within scenic corridors;

8. Legal description of the parcel;

9. Lot width of each proposed lot;

10. Public right-of-way frontage of each proposed lot;

11. Curve radii as applicable;

12. Location and dimensions of existing established and proposed property lines. The existing property lines shall be based upon found monuments;

13. Zoning District;

14. General Plan Land Use Placetype;

15. The location and use of all existing and proposed structures;

16. The Basis of Bearings shall be based on the California Coordinate System. Mapping shall comply with the California Public Resource Code;

17. All required zoning setbacks for the existing and proposed lots;

18. The location of all existing water, sewer, electricity, storm drain, or gas service lines, pipes, systems, or easements;

19. The location of all proposed new water, gas, sewer, storm drain, lines, pipes, or systems;

20. The location of any proposed and/or existing easement, including but not limited to, access or public utilities to serve a lot created by the subdivision;

21. The location and species name of any existing trees larger than four inches in diameter measured four feet six inches above the base and any such trees proposed for removal;

22. Existing and proposed topographic information shall be provided and shall be tied to the City's datum. Contour lines shall have the following intervals:

a. Two (2) foot contour interval for ground slope between ground level and ten (10) percent; and

b. Five (5) foot contour interval for ground slope exceeding ten (10) percent.

23. Name and dimensions, including right-of-way and improved area, of public and private streets or public alleys and private alleys adjoining the parcel;

24. Curb, gutter, sidewalk, parkway, and street trees: type, location, and dimensions;

25. Location of existing or proposed driveway dimensions, materials, and slope (including cross slope);

26. Location of existing or proposed vehicular access to the public right-of-way;

27. Location of existing or proposed pedestrian pathway access to the public right-of-way; and

28. If in the Coastal Zone, location of environmentally sensitive areas, coastal waterways, public parkland, or a coastal bluff edge under penalty of perjury under the laws of California, that:

a. The urban lot split shall contain a declaration that:

i. Each lot created by the urban lot split shall be used solely for residential dwellings;

ii. That no more than two residential dwelling units may be permitted on each lot. As used in this Subsection residential dwelling unit includes a unit created pursuant to Cal. Gov't Code Section 65852.21, a primary dwelling unit, an accessory dwelling unit as defined in Cal. Gov't Code Section 65852.2, or a junior accessory dwelling unit as defined in Cal. Gov't Code Section 65852.22.

iii. That rental of any dwelling unit on a lot created by the urban lot split shall not be less than 30 consecutive days, nor shall rental terms allow termination of the tenancy prior to the expiration of at least one 30-day period occupancy by the same tenant. (ORD-23-0051 § 1(Exh. A), 2023)

20.18.100 Map requirements.

The proposed subdivision shall conform to the following requirements:

A. The two (2) new parcels shall be of approximately equal lot area;

B. One (1) parcel shall not be smaller than forty (40) percent of the lot area of the original parcel;

C. Both newly created parcels shall be no smaller than 1,200 square-feet each;

D. All easements required for the provision of public services and facilities shall be provided to the satisfaction of the Director of Public Works;

E. Each parcel shall be served by a separate water service meter, a separate sewer connection, and gas connection if required;

F. Each parcel shall drain to the street or to a developed drainage easement;

G. Both newly created parcels shall conform to the minimum lot width requirements in Chapter 21.31 and Chapter 20.08 of the Long Beach Municipal Code. Lot width exceptions shall meet the requirements set forth in Section 20.08.020;

H. Lot width means the horizontal distance between the midpoints of the side lot lines, measured at right angles to the line measuring lot depth;

I. Each of the proposed parcels shall have public right-of-way frontage (public street or alley) abutting the original parcel;

J. A flag lot, or a lot with a narrow projecting strip of land extending to or along a public right-of-way frontage, shall not be permitted;

K. Lot depth shall be measured at average distance between the front and rear lot line of the newly created lot;

L. Only within the Coastal Zone, rights-of-way as required for access along all natural and man-made watercourses and bodies of water that includes the beach, bay, and tidelands as necessary for flood control, maintenance, and improvement shall be dedicated to the satisfaction of the Director of Public Works;

M. New lot lines shall be straight lines, unless there is a conflict with existing improvements or

the natural environment in which case the line may be not be straight but shall follow the appropriate natural course;

N. Interior lot lines not facing the street shall be at right angles perpendicular to the street on straight streets, or radial to the street on curved streets;

O. Lot lines shall be contiguous with existing zoning boundaries;

P. The placement of lot lines shall not result in an accessory building or accessory use on a lot without a main building or primary use on the same lot, as defined in the Zoning Ordinance;

Q. Lot lines shall not render an existing structure as nonconforming in any respect (e.g. setbacks, open yard, Floor Area Ratio, parking), nor increase the nonconformity of an existing nonconforming structure. (ORD-23-0051 § 1(Exh. A), 2023)

20.18.120 Expiration.

A. An approved urban lot split shall expire thirty-six (36) months after its approval, except when a time extension has been granted by the Zoning Administrator or meets the terms allowed by Cal. Gov't Code Section 66452.6. (ORD-23-0051 § 1(Exh. A), 2023)

20.18.130 Revisions and amendments of an urban lot split.

A. Where an applicant desires to revise or amend an approved urban lot split map, the applicant may file a revised urban lot split map, prior to the expiration of the approved urban lot split map. A revised urban lot split map shall be subject to additional fees in an amount established by City Council resolution;

B. Revisions and amendments to the urban lot split map shall be made pursuant to Section 66469 et seq. of the Subdivision Map Act;

C. Failure to record a final map before the urban lot split expires shall cause the urban lot split parcel map approval to become null and void with no further action required on the part of the City. Any pending building permit application that proposes more than two (2) principal structures on the original parcel shall become null and void with no further action required on the part of the City, unless the applicant revises the permit application to comply with the Zoning Regulations and the requirements in Cal. Gov't Code Sections 66444—66450;

D. Once an urban lot split has expired, no further subdivision action shall take place until a new tentative map is approved. (ORD-23-0051 § 1(Exh. A), 2023)

20.18.140 County recording.

A. The applicant shall apply for a parcel map with the Department of Public Works prior to approval and recordation of the urban lot split;

B. Prior to the approval and recordation of the parcel map, the applicant shall record a restrictive covenant on each property title in the form prescribed by the City of Long Beach City Attorney which shall run with the land and provide the following:

1. A prohibition against further subdivision of the parcel using the urban lot split procedures as provided for in this Chapter; and

2. A prohibition on the conversion of nonresidential uses of any units developed or constructed on either resulting parcel, and a prohibition against renting or leasing the units for fewer than thirty (30) consecutive calendar days.

C. The urban lot split shall be subject to the map provisions in Chapter 20.16.

D. An urban lot split in the Coastal Zone shall complete the requirements set forth in Section 20.18.060.

E. Upon the approval of the parcel map, the applicant or the property owner shall submit the map to the County Recorder for recordation. The map shall be accepted and recorded by the County prior to issuance of any building permits by the City, except as otherwise provided by this Chapter. (ORD-23-0051 § 1(Exh. A), 2023)

20.18.160 Urban lot split withdrawal.

Any applicant with the owner's consent or record owner of the subject property may withdraw an urban lot split parcel map at any time

prior to the recordation of the urban lot split. Notice of withdrawal shall be provided to the Zoning Administrator in writing. Upon receipt of such notice, the urban lot split shall be considered officially withdrawn, with no further action required on the part of the City. Any building permit application that proposes more than two (2) principal structures on the original parcel shall be null and void with no further action on the part of the City, or such permit(s) may be revised by the applicant to comply with the Zoning Regulations and requirements in Cal. Gov't Code Sections 66444—66450. (ORD-23-0051 § 1(Exh. A), 2023)

CHAPTER 20.20 LOT LINE ADJUSTMENT

20.20.001 Purpose.

Lot line adjustments between four or fewer adjacent legal lots is a streamlined map process that can be used for a variety of purposes, including:

A. Meeting, or more closely meeting, the minimum lot size and area requirements of the zone where the property is located.

B. Complying with required building setbacks.

C. Eliminating an existing encroachment.

D. Addressing compliance with the Building Code.

E. Better conformance with site features and topography.

In accordance with Section 20.04.140.B, lot line adjustments between five or more existing adjoining lots require a tentative and final/tract map, unless they meet noted exceptions where a parcel map could be processed. A tentative parcel map may be waived. (ORD-23-0051 § 1(Exh. A), 2023)

20.20.005 Preparation.

A lot line adjustment shall be prepared by a qualified California civil engineer or a California licensed surveyor in accordance with these regulations. Civil engineers with licenses prior to January 1, 1982 (with a license number before 33966) are authorized to practice all land surveying and engineering surveying. (ORD-23-0051 § 1(Exh. A), 2023)

20.20.010 Standards generally.

The procedures for a lot line adjustment shall apply to the adjustment of property boundaries between four (4) or fewer existing legal adjoining lots recorded with the County Recorder's office in conformance with the Subdivision Map Act where land taken from one (1) lot is added to an adjacent lot and where a greater number of lots than originally recorded is not thereby created. A record of survey may be required pursuant to California Business and Professions Code section 8762.

Multiple lot line adjustments submitted concurrently or sequentially as defined in Section 20.36.243, when five or more parcels exist, circumventing the Subdivision Map Act will not be allowed. A subdivision map will be required in these instances. A lot line adjustment is at the discretion of the Community Development Department Planning Bureau. (ORD-23-0051 § 1(Exh. A), 2023)

20.20.020 Application.

The applicant shall submit an application to the Community Development Department Planning Bureau. Typical information and exhibits that accompany an application are listed below. The Director of Community Development may require additional information or documentation based on the unique circumstances at the site to process the lot line adjustment.

A. One copy of a preliminary title report providing the legal description of the properties included in the application dated not more than three (3) months prior to submittal of the application;

B. Signatures of all record owners included in the application; and

C. Site plan or map legibly drawn to a scale of sufficient size to show full detail, including the following information:

1. North arrow, scale, legend, adjacent streets, dimensions, and field established boundaries of the lots or parcels included in the application be-

fore and after adjustment. The monuments relied upon for the establishment of the boundaries shall be shown on the site plan.

2. Distinct line type indicating the property line(s) to be adjusted and keyed to a legend.

3. Location of existing and proposed buildings and distance(s) between these buildings and proposed property lines, as well as the outline of all structures outside the adjustment area within 10 feet of the boundary lines. The existing structures must show accurate ties, displayed/labeled to one hundredth of a foot, to the existing and proposed boundary lines. The site plan shall be consistent with the current California Building Code Section 107.2.5 stating a site plan shall have an accurate boundary.

4. The lot areas of existing parcels, as well as the lot areas of proposed parcels as adjusted.

5. Name and address of qualified California civil engineer or a California licensed surveyor who prepared the map and the applicable license or registration number.

6. Topographic information with a reference to the source of the information.

7. The locations, widths, and purposes of all existing and proposed easements for utilities, drainage and other public purposes, shown by dashed lines, within and adjacent to the subdivision; all existing and proposed utilities including size of gas and water lines and the size and grade of sewer lines, location of manholes, valve lids, fire hydrants, street trees, and streetlights.

8. The new boundary lines must be monumented and a record of survey filed with the County of Los Angeles. A preliminary record of survey shall be submitted to the Designated City Surveyor. (ORD-23-0051 § 1(Exh. A), 2023)

20.20.030 Community Development Director or Zoning Administrator action.

The Community Development Director or stipulated designee shall act to approve or disapprove the lot line adjustment and shall limit review and approval to a determination of whether or not the parcels resulting from the lot line adjustment will conform to the local general plan, any applicable specific plan, any applicable coastal plan, and zoning and building ordinances. The Director shall not impose conditions or exactions on its approval of a lot line adjustment except to conform to the local general plan, any applicable specific plan, any applicable coastal plan, and zoning and building ordinances, to require the prepayment of real property taxes prior to the approval of the lot line adjustment, or to facilitate the relocation of existing utilities, infrastructure, or easements. No tentative map, parcel map, or final map shall be required as a condition to the approval of a lot line adjustment. A local agency shall approve or disapprove a lot line adjustment pursuant to the Permit Streamlining Act (Chapter 4.5 (commencing with Section 65920) of Division 1). (ORD-23-0051 § 1(Exh. A), 2023)

20.20.040 Required findings.

The Community Development Director or stipulated designee shall approve a lot line adjustment if all the following findings can be made:

A. The modification between lots does not result in a greater number of lots than currently legally exists.

B. The modified lots do not create inconsistencies with the Zoning regulations, the Building Code, and the General Plan.

C. That the design of the lot line adjustment or the type of improvements is consistent with the Local Coastal Plan (LCP) as it considers projected sea level rise, slope stability, hazards and potential storm flooding for the life on the project based on available FEMA information.

D. Individual water and service laterals, sewer connections in accordance with the LBWS Rules and Regulations, gas, and other utilities are available to each adjusted lot, or necessary easements are provided to the satisfaction of the Director of Public Works.

D. All drainage across the adjusted lot line shall be eliminated or necessary easements are provided to the satisfaction of the Director of Public Works.

E. Multiple lot line adjustments submitted concurrently or sequentially, when five or more

parcels exist, circumventing the Subdivision Map Act will not be allowed. A subdivision map will be required in these instances. (ORD-23-0051 § 1(Exh. A), 2023)

20.20.050 Expiration.

A. An approved lot line adjustment shall expire thirty-six (36) months after its approval if it has not been recorded, except when a time extension has been granted by the Community Development Director or the Zoning Administrator.

B. Any lot line adjustment approved between January 1, 2018, and the effective date of Ordinance 20-0023 shall be effective for a period of forty-eight (48) months from the date of issuance. (ORD-23-0051 § 1(Exh. A), 2023)

20.20.060 Final site plan.

After approval by the Zoning Administrator, the applicant shall file a site plan with the Department of Public Works based upon criteria established by the Director of Public Works. The site plan shall be consistent with the current California Building Code Section 107.2.5 stating a site plan shall have an accurate boundary. (ORD-23-0051 § 1(Exh. A), 2023)

20.20.070 Recording of a deed to reflect modified lot lines.

The lot line adjustment shall be reflected in a deed, including modified deeds of trusts, which shall be recorded. The lot line adjustment does not take effect until the deeds have been recorded. The failure to file the deeds within the designated approval period shall render the lot line adjustment null and void. (ORD-23-0051 § 1(Exh. A), 2023)

CHAPTER 20.22 VOLUNTARY LOT MERGERS

20.22.010 Purpose.

Voluntary lot mergers also known as lot combinations involve the elimination of lot lines through the combination of two or more contiguous lots into a single parcel. They are typically pursued with development projects to comply with Zoning and Building Codes with the creation of new buildings that cross existing lot lines. (ORD-23-0051 § 1(Exh. A), 2023)

20.22.015 Preparation.

A lot merger shall be prepared by a qualified California civil engineer or a California licensed surveyor in accordance with these regulations. Civil engineers with licenses prior to January 1, 1982 (with a license number before 33966) are authorized to practice all land surveying and engineering surveying. (ORD-23-0051 § 1(Exh. A), 2023)

20.22.020 Mergers not automatic with single ownership.

Two (2) or more contiguous parcels or units of land which have been created under the provisions of the Subdivision Map Act or any prior law regulating the division of land, or these regulations enacted pursuant thereto, shall not merge by virtue of the fact that such contiguous parcels for units are held by the same owner; and no further proceeding under the provisions of the Subdivision Map Act or these regulations shall be required for the purpose of sale, lease, or financing of such contiguous parcels or units or any of them, except as specified in this Chapter.

On and after January 1, 1984, parcels may be merged only in accordance with the authority and procedures prescribed in this ordinance. This exclusive authority does not, however, abrogate or limit the authority of a local agency or a subdivider with respect to the following procedures:

1. Lot line adjustments.
2. Amendment or correction of a final or parcel map.
3. Reversions to acreage.
4. Exclusions.
5. Tentative, parcel, or final maps which create fewer parcels.

The City may require merger of a parcel or unit with a contiguous parcel or unit held by the same owner, if any one of the contiguous parcels or units held by the same owner does not conform to standards for minimum parcel size, under the

zoning ordinance to the parcels or units of land, and if all of the following requirements are satisfied:

A. At least one of the affected parcels is undeveloped by any structure for which a building permit was issued or for which a building permit was not required at the time of construction, or is developed only with an accessory structure or accessory structures, or is developed with a single structure, other than an accessory structure, that is also partially sited on a contiguous parcel or unit.

B. With respect to any affected parcel, one or more of the following conditions exists:

1. Comprises less than 5,000 square feet in area at the time of the determination of merger.

2. Was not created in compliance with applicable laws and ordinances in effect at the time of its creation.

3. Does not meet current standards for sewage disposal and domestic water supply.

4. Does not meet slope stability standards.

5. Has no legal access which is adequate for vehicular and safety equipment access and maneuverability.

6. Its development would create health or safety hazards.

7. Is inconsistent with the applicable general plan and any applicable specific plan, other than minimum lot size or density standards.

C. This subdivision shall not apply if one of the following conditions exists:

1. On or before July 1, 1981, one or more of the contiguous parcels or units of land is enforceably restricted open-space land pursuant to a contract, agreement, scenic restriction, or open-space easement, as defined and set forth in Section 421 of the Revenue and Taxation Code.

2. On July 1, 1981, one or more of the contiguous parcels or units of land is timberland as defined in subdivision (f) of Section 51104, or is land devoted to an agricultural use as defined in subdivision (b) of Section 51201.

3. On July 1, 1981, one or more of the contiguous parcels or units of land is located within 2,000 feet of the site on which an existing commercial mineral resource extraction use is being made, whether or not the extraction is being made pursuant to a use permit issued by the local agency.

4. On July 1, 1981, one or more of the contiguous parcels or units of land is located within 2,000 feet of a future commercial mineral extraction site as shown on a plan for which a use permit or other permit authorizing commercial mineral resource extraction has been issued by the local agency.

5. Within the coastal zone, as defined in Section 30103 of the Public Resources Code, one or more of the contiguous parcels or units of land has, prior to July 1, 1981, been identified or designated as being of insufficient size to support residential development and where the identification or designation has either (i) been included in the land use plan portion of a local coastal program prepared and adopted pursuant to the California Coastal Act of 1976 (Division 20 of the Public Resources Code), or (ii) prior to the adoption of a land use plan, been made by formal action of the California Coastal Commission pursuant to the provisions of the California Coastal Act of 1976 in a coastal development permit decision or in an approved land use plan work program or an approved issue identification on which the preparation of a land use plan pursuant to the provisions of the California Coastal Act is based.

For purposes of paragraphs 3 and 4 above, "mineral resource extraction" means gas, oil, hydrocarbon, gravel, or sand extraction, geothermal wells, or other similar commercial mining activity, minimum lot size or density standards. (ORD-23-0051 § 1(Exh. A), 2023)

20.22.025 Application.

The applicant shall submit an application to the Community Development Department Planning Bureau with the following statement and exhibits:

A. One copy of a preliminary title report providing the legal description of the properties included in the application dated not more than three (3) months prior to submittal of the application.

B. Signatures of all record owners included in the application.

C. Legal description of parcel(s). Each parcel proposed for merger shall be described separately.

D. Site plan or map legibly drawn to a scale of sufficient size to show full detail, including the information set forth in Section 20.24.030. (ORD-23-0051 § 1(Exh. A), 2023)

20.22.030 Lot merger plat map requirements.

A lot merger plat shall be drawn to a scale of sufficient size to show full detail, on a minimum sheet size of 8½" x 11", and include the following information:

A. Boundary information necessary to determine the lot merger. A field survey shall be necessary. After a field survey is performed, traverse calculations, monument notes and boundary establishment explanations must be included. The site plan shall be consistent with the current California Building Code Section 107.2.5 stating a site plan shall have an accurate boundary. A record of survey may be required in accordance with Business and Professions Code section 8762.

B. Basis of Bearing statement that includes the bearing of a line shown on the plat.

C. Written legal description of existing and proposed parcel with wet signature and seal of Licensed Land Surveyor (L.S.) or qualified Registered Civil Engineer (R.C.E.).

D. Engineer's or Surveyor's certificate with seal, address and telephone number, registration or license number of engineer or surveyor who prepared the map.

E. Title "LOT MERGER NO. _____."

F. Vicinity Map with north arrow and scale indicated.

G. Name, address, telephone number, email address and notarized wet signature of property owner(s).

H. Plat plan with north arrow and scale.

I. Location, width, names, and purpose of all existing and proposed easements for utilities, drainage and other public purposes, shown by dashed lines, within and adjacent to the subdivision; all existing and proposed utilities including size of gas and water lines and the size and grade of sewer lines, location of manholes, valve lids, fire hydrants, street trees, and streetlights.

J. Names of the owners and the Assessor numbers of properties adjacent to the parcels involved.

K. Distinct line type indicating existing boundary and property line(s) to be eliminated as a dashed line with dimensions and keyed to a legend.

L. Proposed boundary to be shown as a solid line.

M. The net or total area of the proposed lot(s) and the area of each existing lot.

N. The dimension of each boundary of each proposed lot.

O. The location of all existing buildings and structures and their uses, the distance between said buildings and structures, displayed or labeled to one hundredth of a foot, and the minimum distance between each building or structure and the established boundary of the proposed lot on which it is located.

P. Location of all railroads, drainage courses, all natural or man-made obstacles, and an indication of any physical restrictions or conditions in the subdivision which affect the use of the property.

Q. A statement of the existing zoning and the proposed use of each lot.

R. As determined necessary by the Planning Department, dimensions of existing buildings or structures, natural or man-made features and perpendicular distances to the property lines for the purpose of identifying encroachments or indicating setbacks. Such features may include curb cuts, driveways, sidewalks, fences, walls, utility poles, vaults, meters, surface drainage, etc.

S. A legend that defines line types and symbology.

T. Utilize legible fonts no smaller than one-tenth of an inch in size.

U. The legal description shall be entitled "EXHIBIT A" "LEGAL DESCRIPTION" and shall

be displayed in a bold font no less than three tenths of an inch in size at the top center of the page.

V. The plat shall be entitled "EXHIBIT B" "PLAT" and shall be displayed in a bold font no less than three-tenths of an inch in size at the top center of the page.

W. Show the proposed boundary as a heavy solid line with dimensions.

X. Indicate the tract lot and block numbers, underlying deed recording information, and the assessor's parcel numbers of properties adjacent to the parcels involved.

Y. Topographic information with a reference to the source of the information. (ORD-23-0051 § 1(Exh. A), 2023)

20.22.035 Accompanying data.

The subdivider shall file copies of drawings, statements, and other data with the Community Development Department as applicable to the proposed lot merger, including, but not limited to the following:

A. Easement documents (if any) and reference maps. Applicant(s) must also submit proof that each affected lot was created legally. The following are legal lots:

1. Lots created by Parcel Map or Tract Map.

2. Lots created or intended to be created by metes and bounds or exception clause (s) prior to March 4, 1972.

3. Lots created by records of survey recorded prior to April 4, 1952.

B. A Certificate of Compliance or a Parcel Map will be required if any of the affected lots do not meet the above criteria. A parcel map will be required when merging five or more lots or parcels. An applicant may file for a waiver of the tentative parcel map. (ORD-23-0051 § 1(Exh. A), 2023)

20.22.040 Required Findings.

The Community Development Director or stipulated designee shall approve a voluntary if all the following findings can be made:

A. The combined lots do not create inconsistencies with the Zoning regulations, Building Code, and the General Plan.

B. That the design of the lot merger or the type of improvements is consistent with the Local Coastal Plan (LCP) as it considers projected sea level rise, slope stability, hazards, and potential storm flooding for the life on the project based on available FEMA information.

C. Individual water and service laterals, sewer connections in accordance with Long Beach Water's Rules and Regulations, gas, and other utilities are available to the combined lot, or necessary easements are provided to the satisfaction of the Director of Public Works.

D. All drainage across the adjusted lot line shall be eliminated or necessary easements are provided to the satisfaction of the Director of Public Works. (ORD-23-0051 § 1(Exh. A), 2023)

20.22.045 Community Development Director or stipulated designee action.

The Community Development Director or stipulated designee shall act to approve or disapprove the voluntary lot merger and shall limit review and approval to a determination of whether or not the lot resulting from the merger will conform to the local general plan, any applicable specific plan, any applicable coastal plan, and zoning and building ordinances. The Director shall not impose conditions or exactions on its approval of the voluntary merger except to conform to the local general plan, any applicable specific plan, any applicable coastal plan, and zoning and building ordinances, to require the prepayment of real property taxes prior to the approval of the lot line adjustment, or to facilitate the relocation of existing utilities, infrastructure, or easements. No tentative map, parcel map, or final map shall be required as a condition to the approval of a voluntary lot merger. A local agency shall approve or disapprove a voluntary lot merger pursuant to the Permit Streamlining Act (Chapter 4.5 (commencing with Section 65920) of Division 1). (ORD-23-0051 § 1(Exh. A), 2023)

20.22.050 Expiration.

An approved voluntary lot merger shall expire thirty-six (36) months after its approval if it has

not been recorded, except when a time extension has been granted by the Community Development Director or stipulated designee. (ORD-23-0051 § 1(Exh. A), 2023)

20.22.055 Recording of a Notice of Merger.

The Community Development Director shall forward the Notice of Merger to the County Recorder. The applicant may record a record of survey or parcel map to finalize the voluntary lot merger at their own discretion if Business and Professions Code section 8762 is not applicable. (ORD-23-0051 § 1(Exh. A), 2023)

20.22.060 Monumentation of a Lot Merger.

Upon recording the deeds reflecting the modified lot lines in a Lot Merger, the applicant shall place tagged, durable monuments at all remaining lot corners in accordance with Sections 8771 and 8772 of the California Business and Professions Code and shall file a record of survey in accordance with Section 8762 of the California Business and Professions Code. See Section 20.08.165 for Monument Standards. (ORD-23-0051 § 1(Exh. A), 2023)

20.22.065 Lot-tie covenant.

The Zoning Administrator may find that a lot tie covenant in lieu of a lot merger is a sufficient legal instrument for combining lots for project(s) that:

A. Propose one hundred percent (100%) affordable units; or

B. City affiliated projects. (ORD-23-0051 § 1(Exh. A), 2023)

CHAPTER 20.24 CITY-INITIATED LOT MERGERS

20.24.010 Purpose.

The City has a procedure for requiring lot mergers in cases where adjacent properties under common ownership could be merged to better comply with established minimum lot dimensions and areas and be more compatible with surrounding development. Voluntary mergers typically pursued to accommodate new development projects are processed in the same manner as lot line adjustments and are described in Section 20.22. City-initiated mergers require a public hearing before the Zoning Administrator, while voluntary lot line adjustments are ministerial and do not require a public hearing. (ORD-23-0051 § 1(Exh. A), 2023)

20.24.015 Preparation.

A lot merger shall be prepared by a qualified California civil engineer or a California licensed surveyor in accordance with these regulations. Civil engineers with licenses prior to January 1, 1982 (with a license number before 33966) are authorized to practice all land surveying and engineering surveying. (ORD-23-0051 § 1(Exh. A), 2023)

20.24.020 Mergers not automatic with single ownership.

Refer to Section 20.22.020 for this provisions. (ORD-23-0051 § 1(Exh. A), 2023)

20.24.025 Application.

The applicant shall submit an application to the Community Development Department Services Planning Bureau with the following statement and exhibits:

A. One copy of a preliminary title report providing the legal description of the properties included in the application dated not more than three (3) months prior to submittal of the application.

B. Signatures of all record owners included in the application.

C. Legal description, Exhibit A, and a plat, Exhibit B, of parcel(s). Each parcel proposed for merger shall be described separately.

D. Site plan legibly drawn to a scale of sufficient size to show full detail, including the information set forth in Section 20.24.030. (ORD-23-0051 § 1(Exh. A), 2023)

20.24.030 Lot merger plat map requirements.

Refer to Section 20.22.030 for plat map requirements. (ORD-23-0051 § 1(Exh. A), 2023)

20.24.035 Accompanying data.

The subdivider shall file copies of drawings, statements, and other data with the Community Development Department as applicable to the proposed lot merger, including, but not limited to the following:

A. Easement documents (if any) and reference maps. Applicant(s) must also submit proof that each affected lot was created legally.

The following are legal lots:

1. Lots created by Parcel Map or Tract Map.

2. Lots created or intended to be created by metes and bounds or exception clause(s) prior to March 4, 1972.

3. Lots created by records of survey recorded prior to April 4, 1952.

B. A Certificate of Compliance or a Parcel Map will be required if any of the affected lots do not meet the above criteria. (ORD-23-0051 § 1(Exh. A), 2023)

20.24.040 Findings required.

Lot mergers shall be required if the Zoning Administrator, at a public hearing, makes any of the following findings:

A. Any of the contiguous parcels or units held by the same owner do not conform to the minimum size standards as required by the zoning regulations, and at least one (1) of such contiguous parcels is not developed with a separate building for which a permit has been issued by the City; or

B. A single project is developed on contiguous lots in such a manner that one (1) or more of these recorded lots could be sold separately from this project but will result in reduction of required parking, setbacks, open spaces, or violation of other development standards as specified in the current zoning regulations.

C. That the design of the lot merger or the type of improvements is consistent with the Local Coastal Plan (LCP) as it considers projected sea level rise, slope stability, hazards, and potential storm flooding for the life on the project based on available FEMA information.

D. Lot mergers cannot exceed five or more parcels or lots. Multiple lot mergers to consolidate five or more parcels is not permitted and a parcel map shall be required. The tentative parcel map may be waived. Parcel maps shall be based upon a field survey. Record data parcel maps are not permitted. (ORD-23-0051 § 1(Exh. A), 2023)

20.24.045 Initiation.

A lot merger may be initiated by the record owner of the lots to be merged or by the Community Development Director. (ORD-23-0051 § 1(Exh. A), 2023)

20.24.050 Notice to affected property owner(s).

The owner(s) of the property to be affected by the merger shall be notified in writing by certified mail and given the opportunity to submit evidence that the property does not meet the criteria to require a merger. Such notice shall specify the date, time, and place when the Zoning Administrator will hold a public hearing on the matter. (ORD-23-0051 § 1(Exh. A), 2023)

20.24.055 Zoning Administrator action.

At the conclusion of the hearing, the Zoning Administrator shall require that a lot merger be filed if any of the findings as stated in Section 20.24.030 is made. The Zoning Administrator's decision shall be transmitted to the affected property owners. (ORD-23-0051 § 1(Exh. A), 2023)

20.24.060 Recording.

Upon a determination that there has been a lot merger, the Community Development Director shall file a notice of lot merger and a Certificate of Compliance for record with the County Recorder, specifying the names of the record owners and particularly describing the real property involved. A copy of said notice shall be sent to the Director of Public Works for recordation on the official maps of the City. (ORD-23-0051 § 1(Exh. A), 2023)

20.24.065 Monumentation of a Lot Merger.

Upon recording the deeds reflecting the modified lot lines in a Lot Merger, the applicant shall

place tagged, durable monuments at all remaining lot corners in accordance with Sections 8771 and 8772 of the California Business and Professions Code and shall file a Parcel Map or Record of Survey in accordance with Section 8762 of the California Business and Professions Code. See Section 20.08.165 for Monument Standards. (ORD-23-0051 § 1(Exh. A), 2023)

20.24.070 Expiration.

An approved City initiated lot merger shall expire thirty-six (36) months after its approval if it has not been recorded, except when a time extension has been granted by the Community Development Director or stipulated designee. (ORD-23-0051 § 1(Exh. A), 2023)

CHAPTER 20.28 ILLEGAL LOTS AND CERTIFICATES OF COMPLIANCE

20.28.010 Applicability and criteria for approval.

A. Applicability. Illegal lots refer to remnant parcels that were not originally created legally through a recorded map procedure consistent with the State of California Subdivision Map Act and applicable City Subdivision Ordinance. These remnant parcels are often nonconforming in terms of meeting lot area and other dimensional requirements such as lot width and length.

B. A certificate of compliance may be issued for illegal lots which meet any one of the following criteria:

1. The lot division creating the illegal lot was done prior to April 4, 1975;

2. The lot division creating the illegal lot after April 4, 1975, was the result of the Planning Commission waiver of parcel map; or

3. The lot division creating the illegal lot after April 4, 1975, was the result of a lot line adjustment approved by the Zoning Administrator.

C. A certificate of compliance shall not be issued for any lot or parcel that does not meet the following standards:

1. Has a legal vehicular and pedestrian access to a public or private street;

2. The certification of an unrecorded lot line does not create a zoning violation for building setbacks, or a standards variance or modification permit for a lesser setback was approved;

3. The lot or parcel has a minimum width of twenty-five feet (25'), and a contiguous parcel(s) is held by the same owner and one (1) of the parcels is vacant;

4. The parcels have been developed to their full development potential under the existing zoning and used as one (1) parcel or lot;

5. Has water or sewer services that meet the requirements of the Long Beach Water Department Rules and Regulations; and

6. That issuance of the certificate of compliance is consistent with the Local Coastal Plan (LCP) as it considers projected sea level rise and potential storm flooding for the life on the project based on available FEMA information. (ORD-23-0051 § 1(Exh. A), 2023)

20.28.020 Conditional approval.

When an illegal lot is eligible for a certificate of compliance but the design or improvement does not comply with the provisions of these regulations or other local ordinances, the City may, as a condition to granting a certificate of compliance, impose such conditions as would have been applicable to the division of the property at the time the current owner of record acquired the property. (ORD-23-0051 § 1(Exh. A), 2023)

20.28.030 Deed restriction.

When an illegal lot is substandard in size or has limited access, a deed restriction shall be recorded to restrict the type of land use and its density. (ORD-23-0051 § 1(Exh. A), 2023)

20.28.040 Conditions required for building permit issuance.

For illegal lots created prior to April 4, 1975, no building permit shall be issued for the property until the current property owner:

A. Provides a separate sewer connection to the public sewer or obtains necessary easements to the satisfaction of the Director of Public Works;

B. Eliminates all cross-lot drainage and cross-lot conveyance of gas and water service laterals, or obtains necessary easements to the satisfaction of the Director of Public Works; and

C. Agrees to repair all damaged off-site improvements including curb, gutter, sidewalk, and alley adjoining the site to the satisfaction of the Director of Public Works.

The owner shall furnish a copy of the above conditions and requirements to the prospective buyer prior to the close of any escrow involving the sale or lease of condominium or other common interest units on the parcel. (ORD-23-0051 § 1(Exh. A), 2023)

20.28.050 Created before April 4, 1975—Filing.

The request shall be made in writing on a form provided by the Community Development Department along with the following data:

A. A title report containing a legal description of the property, a chain of title, and easement information;

B. A plot plan legibly drawn to scale to show dimensions of the property, locations of existing and including, but not limited to, proposed buildings, setbacks of all existing and proposed buildings to property lines, pedestrian and vehicular access points, locations of utility lines and easements, and other information to determine compliance with established standards in Section 20.24.010; and

C. A document verifying that the division was lawfully created prior to April 4, 1975. (ORD-23-0051 § 1(Exh. A), 2023)

20.28.060 Created before April 4, 1975—Certificate of compliance.

Where the request complies with the provisions of this Section, a certificate of compliance, or a conditional certificate of compliance, shall be issued by the Community Development Department. (ORD-23-0051 § 1(Exh. A), 2023)

20.28.070 Created before April 4, 1975—Recording.

Following issuance of the certificate of compliance, the Community Development Department shall record the certificate with the County Recorder. (ORD-23-0051 § 1(Exh. A), 2023)

20.28.080 Created before April 4, 1975—Map.

After issuance of a certificate of compliance, the Community Development Department shall transmit a copy of such certificate to the Director of Public Works and this new recorded lot or division shall be shown on the official maps of the City of Long Beach. (ORD-23-0051 § 1(Exh. A), 2023)

20.28.090 Created after April 4, 1975.

A certificate of compliance shall be issued and recorded for any illegal lot created after April 4, 1975 if the filing of a (final) parcel map for such lot is waived or a lot line adjustment for the lot is approved by the Zoning Administrator. (ORD-23-0051 § 1(Exh. A), 2023)

CHAPTER 20.30 COMMON INTEREST SUBDIVISIONS

20.30.010 Applicability.

Common Interest Subdivisions provide for ownership of separate units as well as interest in commonly owned areas that are managed and maintained by a homeowners' association. As further described in the definitions section, Common Interest Subdivisions include the following:

A. Airspace Condominium (residential zones), and

B. Planned Unit Development. (ORD-23-0051 § 1(Exh. A), 2023)

20.30.020 Purpose.

Common Interest Subdivisions allow for the creative use of project sites to lay out development to address physical site constraints and cluster residential units in more creative and functional fashions. They are often employed to create small lot subdivisions which provide for many of the amenities of traditional residential subdivisions, but allow for more efficient use of sites, and net more workforce units that are affordable to those first entering the housing market. These types of

common interest projects run the gamut from smaller infill sites to larger development projects with more common spaces and shared facilities. (ORD-23-0051 § 1(Exh. A), 2023)

20.30.030 Property development standards for airspace condominiums.

Within Airspace Condominium projects, property development standards, including (but not limited to) density, yards, and coverage, shall apply with respect to the exterior boundary lines (property lines) of the proposed subdivision and not to individual dwelling units within the project. Area outside of units is owned and maintained by a homeowners' association. Density may be averaged over the entire site, and separation between units is not governed by the Zoning Regulations yard requirements. Units may be attached or detached or even stacked. Each unit must meet the private open space requirements, and a common open space must be provided on site. Typically, the map consists of one common lot with a condominium plan identifying the outline of each unit. (ORD-23-0051 § 1(Exh. A), 2023)

20.30.040 Property development standards for planned unit developments.

Planned Unit Developments create small fee simple lots. Within Planned Unit Development subdivisions, property development standards shall apply to each lot within the project unless different standards are approved through the Planned Unit Development zoning process (Section 21.31.300 of the Zoning Regulations). (ORD-23-0051 § 1(Exh. A), 2023)

20.30.050 Property improvement standards for common interest subdivisions.

A. Common open space, recreation facilities and driveways may be contained within easements or a commonly owned separate lot.

B. Common interest subdivisions must provide a method of common area maintenance by means of an association or agreement. (ORD-23-0051 § 1(Exh. A), 2023)

20.30.060 Application requirements for common interest subdivisions.

In addition to application submittal requirements for Tentative Maps provided in Chapter 20.12, the following additional information is required to complete an application submittal:

A. Common interest subdivisions are subject to the City's Site Plan Review process and require a separate application for Site Plan Review. In summary, a development plan that includes the following information will be required:

1. A site plan with proposed building footprints with property boundaries. All dimensions shall be clearly labeled.

2. Proposed building elevations with dimensions and floor plans.

3. A grading and site drainage plan.

4. Parking stalls, driveways and associated public improvements shall be provided and clearly dimensioned.

5. A list of property statistics, including any proposed exceptions, shall be provided on the plans. The statistics shall identify how the project complies with relevant property development standards.

6. A landscape plan.

7. Commonly owned parcels or easements and methods of maintenance (association) shall be clearly identified on the plans. (ORD-23-0051 § 1(Exh. A), 2023)

CHAPTER 20.31 AIRSPACE SUBDIVISIONS

20.31.010 Applicability.

As further described in the definitions section, Chapter 20.36, Airspace Subdivisions differ from Common Interest Subdivisions in that they do not share interest in a common area within the map boundaries. Instead, airspace subdivisions divide property ownership into three-dimensional spaces, often stacked upon one another. Airspace Subdivisions are not allowed within residential zoning districts and are intended to serve mixed use, multistory buildings within all commercial zoning dis-

tricts where permitted. (ORD-23-0051 § 1(Exh. A), 2023)

20.31.020 Tentative map requirements.

A. All tentative maps creating airspace lots shall be required to incorporate a deed restriction which ensures the following:

1. Airspace lots shall have access to appropriate public rights of way by means of one or more easements or other entitlements to use, in a form satisfactory to the Public Works Director, City Attorney, and Building Official.

2. Parking requirements, inclusionary housing requirements, Building Code requirements, all other applicable property development standards required by the Zoning Regulations, and any other technical code requirements affecting the development of the property, shall be determined for the air space lots as if all lots in the air space subdivision were merged into the same lot.

B. Individual buildings that are subdivided by an airspace map shall be reviewed as a single building for purposes of the building code, zoning code, and General Plan policies. Property development standards including, but not limited to density, lot coverage, floor area ratio, parking, height, and setbacks shall be calculated as if the subdivided building were within one lot.

1. In addition to the application submittal requirements for tentative maps, the tentative map shall provide cross-sectional drawings showing how the proposed building or buildings are to be divided into ownership boundaries. (ORD-23-0051 § 1(Exh. A), 2023)

CHAPTER 20.32 CONDOMINIUM, COMMUNITY APARTMENT PROJECT AND STOCK COOPERATIVE CONVERSION*

ARTICLE 1. GENERAL PROVISIONS

20.32.010 Purpose.

A. This Section shall provide for the regulations of ownership conversion projects where ownership of existing buildings is subdivided into common interest ownership whether such subdivision involves residential to residential; residential to commercial/industrial; commercial/industrial to commercial/industrial or commercial/industrial to residential use conversions. Common interest conversions include:

1. Conversions to condominium as defined in Section 1350 of the Civil Code;

2. Conversion to community apartment projects, as defined in Section 11004 of the Business and Professions Code; or

3. Conversion to stock cooperatives, as defined in Section 11003.2 of the Business and Professions Code.

B. This Section recognizes that a conversion is different from a new construction in that the owners of a unit in a conversion take responsibility for a building built under standards that may be less stringent than those that are currently deemed necessary, and existing tenants may be displaced by a conversion. A conversion also differs from a rental property in that the unit owner assumes long-term responsibility for the unit owned, for the common areas of the project, and the higher level of economic cost required to own instead of rent.

C. The intent of this Section is thus to provide increased ownership opportunities for all segments of the population; to mitigate the hardship caused by displacement of tenants (particularly those in low to moderate cost housing, those who are elderly, families with low income, and other special needs households; and to assure that conversion projects maintain long-term economic value for the owner. Therefore, such conversions shall be permitted, provided that they comply with the minimum standards, and meet the required findings subject to the action of the decision-making body set forth in this Section for the type of conversion proposed. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.025 Exclusions—Certification procedures.

A. Notwithstanding any provision of Section 20.02.050 of the Long Beach Municipal Code,

*State law reference—Provisions on improvement security, Gov. Code § 66499 et seq.

the conversion of a community apartment project or a stock cooperative to another form of ownership shall be excluded from all other provisions of Chapter 20.32 if the owner seeking such exclusion applies for and is granted a certification establishing entitlement to the exclusion under Section 66412 of the California Government Code pursuant to the provisions of this Section 20.32.025.

B. In order to be granted such certification, an owner shall apply for such certification, and the application shall include sufficient evidence and documentation to enable the certifying authority to make each and every requirement set forth in Subsection C of this Section.

1. Each application shall be accompanied by a nonrefundable fee to reimburse the City for its cost of accepting and processing the application in an amount as set forth from time to time by resolution of the City Council.

2. Each application shall also be accompanied by, and shall not be deemed complete unless accompanied by the following:

a. A statement applying for certification of exclusion signed by the person/party authorized to act for those with record title interest in the property for which the exclusion is sought;

b. In the case of the conversion of a community apartment project, evidence that the provisions of California Government Code Subdivision 66412(g), relating to the property proposed for exclusion have been met (Sections 20.32.025(C)(1));

c. In the case of the conversion of stock cooperatives, evidence that the provisions of California Government Code Section 66412(h) have been met (Section 20.32.025(C)(2);

d. In the case of either the conversion of community apartment or stock cooperative, an enforceable plan for assuring, to the satisfaction of the City, that the noticing, purchase option, and tenant disclosure provisions of Sections 20.32.040, 20.32.050 and 20.32.060 will be met; and

e. Evidence of insurable title in the project proposed for conversion.

C. The Community Development Department shall issue a certificate of exclusion for each project for which application is lawfully made if, and only if, the Community Development Director, or his/her lawful designee, makes the following findings based on the application reviewed by him after acceptance as complete:

1. That, in the case of a community apartment project, all of the following requirements are met:

a. The property was subdivided before January 1, 1982, as evidenced by a recorded deed creating the stock cooperative, an assignment of lease, or issuance of shares to a stockholder.

b. Subject to compliance with Sections 4290 and 4295, or with Sections 6626 and 6628, of the Civil Code, all conveyances and other documents necessary to effectuate the conversion shall be executed by the required number of owners in the cooperative as specified in the bylaws or other organizational documents. If the bylaws or other organizational documents do not expressly specify the number of owners necessary to execute the conveyances and other documents, a majority of owners in the cooperative shall be required to execute the conveyances or other documents. Conveyances and other documents executed under the foregoing provisions shall be binding upon and affect the interests of all parties in the cooperative.

c. If subdivision, as defined in Section 66424, of the property occurred after January 1, 1980, both of the following requirements are met:

(1) A final or parcel map of that subdivision was approved by the local agency and recorded, with all of the conditions of that map remaining in effect after the conversion.

(2) No more than 49 percent of the shares in the project were owned by any one person as defined in Section 17, including an incorporator or director of the cooperative, on January 1, 1982.

2. That, in the case of stock cooperative project, all of the following requirements are met:

a. The property was subdivided before January 1, 1982, as evidenced by a recorded deed creating the stock cooperative, an assignment of lease, or issuance of shares to a stockholder.

b. A person renting a unit in a cooperative shall be entitled at the time of conversion to all

tenant rights in state or local law, including, but not limited to, rights respecting first refusal, notice, and displacement and relocation benefits.

c. Subject to compliance with Sections 4290 and 4295, or with Sections 6626 and 6628, of the Civil Code, all conveyances and other documents necessary to effectuate the conversion shall be executed by the required number of owners in the cooperative as specified in the bylaws or other organizational documents. If the bylaws or other organizational documents do not expressly specify the number of owners necessary to execute the conveyances and other documents, a majority of owners in the cooperative shall be required to execute the conveyances or other documents. Conveyances and other documents executed under the foregoing provisions shall be binding upon and affect the interests of all parties in the cooperative.

d. If subdivision, as defined in Section 66424, of the property occurred after January 1, 1980, both of the following requirements are met:

(1) A final or parcel map of that subdivision was approved by the local agency and recorded, with all of the conditions of that map remaining in effect after the conversion.

(2) No more than 49 percent of the shares in the project were owned by any one person as defined in Section 17, including an incorporator or director of the cooperative, on January 1, 1982.

e. The local agency certifies that the above requirements were satisfied if the local agency, by ordinance, provides for that certification.

3. With either a conversion of a community apartment or a stock cooperative, that evidence of insurable title in the property proposed for conversion has been filed with the City.

D. Each certificate of exclusion issued by the Community Development Director or designee shall, following issuance, be recorded in the office of the Recorder of the County of Los Angeles and shall, upon such recordation, be deemed in full force and effect.

E. For purposes of review under the California Environmental Quality Act, certificates issued pursuant to this Section shall be deemed categorically exempt.

F. As used in this Section "certifying authority" means the Community Development Director of the City of Long Beach or his/her designee. (ORD-23-0051 § 1(Exh. A), 2023)

ARTICLE 2. RESIDENTIAL RENTAL TO RESIDENTIAL/COMMERCIAL/INDUSTRIAL OWNERSHIP REQUIREMENTS

20.32.030 Generally.

The provisions of this Article shall apply to any project consisting of the conversion of residential rental unit use to an ownership unit of any use. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.040 Tenant notice.

A current property owner shall be responsible to give each tenant and each prospective tenant all applicable notices, documents, and rights now or hereafter as required by these regulations and State Law. These notices shall be documented and receipts of such notices by each tenant or prospective tenant shall be furnished to the Community Development Department. These notices shall include, but are not limited to:

A. Each tenant shall be given written notice of the intent to seek a conversion a minimum of sixty (60) days prior to the filing of a tentative map for the subject rental property.

B. Each tenant shall be given written notice 10 days prior that an application for a public report will be submitted to the Bureau of Real Estate, that the period for each tenant's right to purchase begins with the issuance of the final report, and that the report will be available upon request. Such notice shall contain, as a minimum, an explanation of the tenant's rights and benefits as a result of the conversion, and a statement that no evictions will occur as a result of conversion for at least one hundred eighty (180) days.

C. Each tenant shall be given written notice of the public hearing at least ten (10) days prior to the public hearing on the tentative map before the Planning Commission and Zoning Administrator. Such notice shall be as specified by the Community Development Director and shall contain, as a

minimum, an estimate as to the length of time before the conversion, if approved, would result in the tenant's eviction; an explanation of the tenant's rights and benefits if the conversion is approved; and the grounds upon which the Planning Commission or the Zoning Administrator can deny the request for conversion.

D. A copy of the agenda and staff report to the Planning Commission and Zoning Administrator on the proposed conversion shall be delivered to each tenant of the subject property at least three (3) days prior to the hearing date.

E. Each tenant shall receive written notification within ten (10) days of approval of a tentative map for the proposed conversion.

F. Each tenant shall receive written notification at least ten (10) days prior to consideration of final map approval for the subject conversion by the City Council, or Director of Public Works, as applicable. Such notices shall provide an estimate of the length of time prior to eviction. For all projects, relocation assistance/benefits shall be provided in accordance with Long Beach Municipal Code, Chapter 21.60 of the Zoning Regulations, and State Law. The subdivider shall specify when the tenants will be eligible for these benefits and eviction shall not occur for at least one hundred eighty (180) days after the date as specified.

G. For a project with five (5) units or more, each tenant shall receive written notice within five (5) days of the issuance of the final subdivision public report by the State Bureau of Real Estate. A copy of this report shall be available to tenants on request.

H. No eviction shall occur as a result of conversion for at least one hundred eighty (180) days from approval of a tentative map, and the end of the ninety (90) day period of the exclusive option to purchase the unit. If a property owner does not offer the units for sale to the tenants within two (2) years after approval of a final map, the minimum one hundred eighty (180) days' notice prior to the eviction including a ninety (90) day exclusive option to purchase period shall be provided to each tenant prior to eviction when the owner decides to offer the units for sale. Within the designated time periods prior to notice of eviction, tenant rental rates shall not be increased.

I. Very low- or low-income households shall not be displaced from housing unless first given prior written notice of the intended conversion, on a form provided or approved by the Housing & Neighborhood Services Bureau, at least eighteen (18) months prior to the intended date of displacement. Less notification time may be permitted in accordance with Chapter 21.60. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.050 Tenant option to purchase.

Each tenant shall be given notice of an exclusive right to contract for the purchase of an occupied unit, or other available rental units in the building upon the same terms and conditions that such units will be initially offered to the general public or on terms more favorable to the tenant: This right shall run for a period of not less than ninety (90) days from:

A. The date of approval of a final map (for four (4) units or less); or

B. The date of issuance of the final subdivision public report (for five (5) units or more) unless the tenant gives prior written notice of their intention not to exercise the right. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.060 New tenant disclosure.

A. Whenever, after serving of the notice of intention to submit a tentative map for conversion (or after completion of a multi-family dwelling for which a condominium, community apartments or stock cooperative map has received tentative approval), the owner rents or leases any dwelling unit affected by such map, the person to whom the dwelling is to be rented or leased shall be informed of the owner's intention to convert. Such disclosure shall occur prior to finalization of any rental or lease agreement. Such disclosure shall be a single page document stating that an application for conversion will be or has been submitted and that the prospective tenant should consider that at some future date the building will be converted.

The prospective tenant shall sign such document acknowledging that he has been notified of the potential conversion.

B. Any person so notified shall not be entitled to the moving expenses or displacement benefits specified in this Section. However, a tenant who resides in the complex when the first notice of intention to convert is given or when first notified of the intent to convert, shall still be entitled to the moving expenses or displacement benefits specified in this Section regardless of notice prior to execution of a rental or lease agreement. The disclosure document shall also disclose that the prospective tenant will not be entitled to these expenses or benefits. Any tenant who does not receive such notification shall be entitled to these expenses or benefits.

C. Regardless of each prospective tenant being informed of the proposed conversion prior to finalization of any rent or lease agreement, a notice of such intended conversion shall be posted and maintained at all times in a highly visible location outside the Manager's office or unit or the rental office, if any. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.085 Harassment.

After approval of the tentative map, action by the landlord which is intended to cause the tenant to quit the premises prior to one hundred eighty (180) day notice, including unreasonable rent increases, shall be considered harassment and shall be grounds for denial of a final map. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.090 Code compliance.

The owner seeking a conversion shall file a request with the Building and Safety Bureau for a special code compliance inspection. The report from such inspection of all units to be converted must be received by Planning Bureau before an application for a tentative map for a conversion is considered complete. Such report shall list all violations relating to the applicable requirements in Title 18 of the Long Beach Municipal Code which may cause health or safety hazards as determined by the Building and Safety Bureau. The subdivider shall correct all listed violations prior to approval of the final map. Such fees as are established by City Council resolution shall be paid for the inspection and for any subsequent inspection as is necessary to ensure that corrections have been completed. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.100 Major system corrections.

The owners shall submit with the application for tentative map approval for conversion inspection reports from State licensed contractors for the heating and plumbing systems of the project, as well as reports for an inspection of the roof and an inspection for termites if applicable. All such inspections shall have been conducted within three (3) months prior to the submittal of the tentative map. Any corrections or repairs recommended as reasonably necessary within the next five (5) years shall be provided for prior to approval of the final map. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.110 Sound attenuation.

Sound attenuation in all wall and floor-to-ceiling assemblies abutting other dwelling units, or hallways shall be required to meet a minimum Sound Transmission Class (STC) as required by Title 18 of the Long Beach Municipal Code. Whenever there are practical difficulties involved in carrying out the provisions of this Section, a code modification may be considered pursuant to Section 18.03.050 for justifiable cause. To support a requested code modification, documentation shall be provided from a third-party acoustic engineer on sound attenuation conditions between units vertically and horizontally as well as exterior noise. Recommended improvements should be identified to ensure compliance to the maximum extent practical. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.120 Smoke and Carbon Monoxide Detection equipment.

A smoke and carbon monoxide device(s) shall be provided for each residential unit. A device or devices shall be located and mounted as required in Title 18 of the Long Beach Municipal Code. All

required detectors shall be located in accordance with approved manufacturer's instructions and shall receive their primary power from the buildings wiring. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.130 Parking requirements.

The minimum off-street parking shall be provided in accordance with the current standards in Chapter 21.41 or Title 22 of the Municipal Code, Planned Developments, and Specific Plans, except as specified in this Section. The following exceptions apply:

• If the conversion meets applicable affordability standards in accordance with Government Code Sections 65915 through 65918, the project may use the allowed lower parking requirements included in this code.

• If the project is located within a one-half (1/2) mile radius from a major public transit stop as defined in Section 21155 of the Public Resources Code, no parking shall be required pursuant to Government Code Section 65863.2 for residential and commercial projects or other development projects unless the City makes written findings, within 30 days of the receipt of a completed application, that not imposing or enforcing minimum automobile parking requirements on the development would have a substantially negative impact, supported by a preponderance of the evidence in the record.

• If the project is outside of the half-mile radius of a major public transit stop but within the Transit Priority Area, Transportation System Demand Management (TDMs) strategies may be implemented, subject to Site Plan Review.

º The covenants, conditions and restrictions (CC&Rs) shall demonstrate how the Homeowners Association (HOA) will manage the strategies implemented in the TDMs for the project.

º Conversion projects in the Coastal Zone do not qualify for TDMs, except for areas within the Southeast Area Specific Plan (SEASP). (ORD-23-0051 § 1(Exh. A), 2023)

20.32.140 Distribution of required parking.

When parking is required, no less than one (1) parking space that may be independently accessed shall permanently be available to each dwelling unit, except that upon request, the Site Plan Review Committee may waive this requirement and allow unbundled parking (parking spaces rented or sold separately, rather than automatically included with the rent or purchase price of a residential unit), subject to the meeting following:

A. The covenants, conditions and restrictions (CC&Rs) shall demonstrate how the Homeowners Association (HOA) will manage the unbundled parking for the project. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.150 Building security.

Each unit shall be subject to the building security provisions in accordance with Title 18 of the Long Beach Municipal Code, which shall include, but is not limited to the following:

A. Keying.

B. Door Jambs.

C. Locks.

D. Doors.

E. Hinges.

F. Windows and Sliding Glass Doors.

G. Street Numbers.

H. Lighting. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.160 Energy conservation requirements.

An energy audit of the buildings shall be performed that evaluates how existing conditions can more closely reflect current Building Code requirements. A report with the audit's findings shall be prepared to the approval of the City's Chief Building Official. At the Building Official's discretion in terms of feasibility to implement, the following minimum energy conservation standards shall be met or exceeded for all conversions prior to approval of the final map:

A. Insulation. Insulation in ceilings and attics exposed to the exterior of the building shall be such that the resistive value of the ceilings and attics shall be of "R-value" of at least R-19.

B. Weather Stripping. All operable doors and windows opening to the exterior or to uncondi-

tioned areas such as garages shall be fully weatherstripped, gasketed or otherwise treated to limit temperature infiltration.

C. Pools. Swimming pool covers shall be installed for existing swimming pools.

D. Separate Utility Meters. All units shall be converted to separate utility meters except when common water heating systems are provided or when the type of common meter system is such that it is not reasonably feasible to convert to a separate meter system. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.170 Minimum size.

No conversion shall be permitted if more than fifteen percent (15%) of the total number of units in the conversion have a unit size less than four hundred fifty (450) square feet, unless the project involves micro units as defined in Chapter 21.15.1756 and meets the special standards within Chapter 21.45.600.

A. Conversion projects involving micro-units shall be applicable until the 500-unit cap of micro-units is satisfied, unless extended by City Council Action. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.175 Existing Conditions Report required.

An existing conditions report shall be provided to determine if right-of-way and utility improvements, as well as other site improvements will be required for the development. The following are typical project improvements that may require upgrading as part of the conversion request:

A. Right-of-way improvements abutting the property including sidewalks, curbs cuts, curbs, gutters, driveway approaches, alleys and parkway landscaping including trees.

B. Repaving and striping of on-site hardscapes such as parking areas and driveways.

C. Utilities such as gas lines, water mains, and sewer laterals, and other utilities.

D. Building façade upgrades such as siding replacement, plaster patching, new windows, and painting.

E. Landscaping improvements for beautification, energy efficiency, reducing water runoff and reducing water use.

F. Open space enhancements and community recreation facilities. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.180 Improvement Plan.

Based on the recommendations of the existing conditions report identified in Section 20.32.175, an improvement plan shall be submitted to the Community Development Department that includes detailed information for upgrading the proposed project to the standards in effect for construction of new buildings, to the extent financially and practically feasible with regard to building/architectural design, site improvements, parking, open space and landscaping. No improvement plan shall be deemed adequate for purposes of processing a tentative map for condominiums until approved by the Community Development Director, or the Director's designated representative, as complying with the requirements of this section. Submittal requirements include, but are not limited to, the following:

A. A site plan showing all existing and proposed structures, including walls and fences, landscaping, site amenities, irrigation systems, driveways, and parking areas, including the information set forth in Section 20.24.030. The site plan shall be consistent with the current California Building Code Section 107.2.5 stating a site plan shall have an accurate boundary.

B. A statement of the current and proposed ownership of the subject property and its current and proposed use.

C. A description of the site including its overall area.

D. The number of existing and proposed dwelling units in the project and including the number of bedrooms in each unit.

E. A copy of the current management program, as well as a proposed management program that includes requirements for oversight of parking assignments, operations standards, structural maintenance, and a schedule for all types of long-term project maintenance needs.

F. The plan shall identify existing facilities and plan improvements to help enhance the quality of the development such as laundry facilities, heating and cooling systems, and on-site storage areas for the use of tenants.

G. A statement of proposed assessments and fees to be charged to owners of dwelling units after conversion to condominiums.

H. An inspection report prepared by a third-party substantiating that the full extent of necessary improvements is included in the submitted improvement plan.

I. A market rate study. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.185 Typical conditions.

A. The subdivider shall commission a current structural pest control inspection report prepared by a licensed professional, showing the subject premises to be free of evidence of termite, dry-rot, fungi and/or damage therefrom. Such a report shall be deemed current for a period of not more than ninety (90) days following the date of inspection.

B. The subdivider shall prepare conditions, covenants, and restrictions (CC&R's) to be approved by the Community Development Director and the City Attorney prior to final map approval. CC&R's shall contain the following provisions:

1. Creation of a homeowners' association (HOA) to enforce the CC&R's and provide for professional, perpetual maintenance of all common areas including private driveways, drainage, on-site utilities, parking lot areas, walls and fences, lighting, and landscaping.

2. The HOA shall require residents to pay a monthly fee to help offset long-term maintenance costs of the buildings and other improvements. Additional special assessments may be required to pay for major upgrades or repairs beyond HOA revenue generated by monthly dues as a maintenance fund.

C. The subdivider shall provide a one-year minimum condominium warranty to residents. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.190 Required findings.

A tentative map for the conversion shall be approved if the following findings can be made:

A. The submitted improvement plan has been approved by the Community Development Director and demonstrates that the project will provide safe and energy efficient housing, adequate parking, and typical residential facilities and amenities.

B. The project will provide ownership opportunities for residents consistent with goals of the City's adopted Housing Element.

C. A portion of the project units will be available to home buyers in qualifying affordable income categories consistent with the City's Inclusionary Ordinance.

D. To the extent feasible, the project has been improved to closely comply with the current development standards in this Title and Titles 21/22.

E. Approval of the conversion will not be detrimental to the welfare of future residents of the project, surrounding property owners and residents, and the general public.

F. The vacancy rate for multifamily dwelling units in the City is greater than five percent (5%).

G. Existing tenants were notified of the conversion consistent with the provisions included in Section 20.32.040, provided with the option to purchase a unit consistent with Section 20.32.050, and advised of potential moving expenses or displacement benefits consistent with Section 20.32.060. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.195 Exceptions.

For exceptions, see Article 5 of this chapter. (ORD-23-0051 § 1(Exh. A), 2023)

ARTICLE 3. COMMERCIAL/INDUSTRIAL/RENTAL TO COMMERCIAL/INDUSTRIAL/RESIDENTIAL OWNERSHIP

20.32.200 Generally.

The provisions of this Article shall apply to any project consisting of the conversion of commercial/industrial rental to commercial/industrial/

residential ownership. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.210 Tenant notice.

A current property owner shall be responsible to give each tenant and each prospective tenant all applicable notices and rights now or hereafter as required by these regulations and State Law. Prior to sending out notices, the property owner shall ask tenants of their preferred language for the notice. A draft version of the notices shall be submitted to the Community Development Department for review and approval to wording and format prior to sending to tenants. Upon request by a visually impaired or blind recipient, special notice options shall be made available such as a braille notice, mailed CD with audible notice, or a follow-up phone call from City staff to read the notice. These notices shall be documented and receipts of such notices by each tenant or prospective tenant shall be furnished to the Community Development Department. The notices shall include but is not limited to:

A. Each tenant shall be given written notice of the public hearing at least ten (10) days prior to the public hearing on the tentative map before the Planning Commission or Zoning Administrator. Such notice shall be as specified by the Community Development Director and shall contain, as a minimum, an estimate as to the length of time before the conversion, if approved, would result in the tenant's eviction; and explanation of the tenant's rights and benefits if the conversion is approved; and the grounds upon which the Planning Commission or Zoning Administrator can deny the request for conversion.

B. Each tenant shall receive written notification within ten (10) days of approval of a tentative map for the proposed conversion. Such notice shall contain, as a minimum, an explanation of the tenant's rights and benefits as a result of the conversion, and a statement that no evictions will occur as a result of conversion for at least one hundred eighty (180) days.

C. Each tenant shall receive written notice of approval of a final map within ten (10) days after the approval. Such notice shall also specify that each tenant shall have a ninety (90) day exclusive option to purchase a unit, that no eviction shall occur as a result of conversion prior to the end of that ninety (90) day period. If the property owner has no intention to sell units within two (2) years after approval of a final map, such intention shall be clearly stated and a minimum of one hundred eighty (180) day notice prior to the eviction and a ninety (90) day period for an option to purchase shall be provided to each tenant. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.220 Tenant option to purchase.

Consistent with the noticing review process and options described in Section 20.32.210, each tenant shall be given notice of an exclusive right to contract for the purchase of an occupied unit, or other available rental unit(s) in the building upon the same terms and conditions that such units will be initially offered to the general public or on terms more favorable to the tenant; the right shall run for a period of not less than ninety (90) days from the date of approval of a final map, unless the tenant gives prior written notice of his intention not to exercise the right. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.230 New tenant disclosure.

A. Whenever, after submittal of a tentative map for conversion (or after completion of building for which a tentative map for approval of a condominium or stock cooperative has received approval) each prospective tenant shall be informed of the owner's intention to convert. Such disclosure shall occur prior to finalization of any rental or lease agreement. Such disclosure shall be a single page document stating that an application for conversion has been submitted and that the prospective tenant should consider that at some future date the building will be converted. The prospective tenant shall sign such document acknowledging that he has been notified of the potential conversion.

B. The disclosure document shall also disclose that the prospective tenant will not be enti-

tled to benefits or rights as required by these regulations. However, any tenant who does not receive such notification shall be entitled to these benefits.

C. Regardless of each prospective tenant being informed of the proposed conversion prior to finalization of any rent or lease agreement, a notice of such intended conversion shall be posted and maintained at all times in a highly visible location on the site. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.240 Parking.

The minimum off-street parking shall be provided in accordance with the current standards in Chapter 21.41 or Title 22 of the Municipal Code, Planned Developments, and Specific Plans, except as specified in this Section. The following exceptions apply:

A. If the conversion meets applicable affordability standards in accordance with Government Code Sections 65915 through 65918, the project may use the allowed lower parking requirements included in this code.

B. If the project is located within one-half (1/2) mile radius from a major public transit stop as defined in Section 21155 of the Public Resources Code, no parking shall be required as pursuant to Government Code Section 65863.2 for residential and commercial projects or other development projects unless the City makes written findings, within 30 days of the receipt of a completed application, that not imposing or enforcing minimum automobile parking requirements on the development would have a substantially negative impact, supported by a preponderance of the evidence in the record.

C. If the project is outside of the half-mile radius of a major public transit stop but with the Transit Priority Area, Transportation System Demand Management (TDMs) strategies may be implemented, subject to Site Plan Review Committee.

1. The covenants, conditions, and restrictions (CC&Rs) shall demonstrate how the Homeowners Association (HOA) will manage the strategies implemented in the TDMs for the project.

2. Conversion projects in the Coastal Zone do not qualify for TDMs, except for areas within the Southeast Area Specific Plan (SEASP).

D. A commercial property may be exempted from the current parking standard of Chapter 21.41 and Title 22 for a commercial condominium conversion project if parking for the development, at a minimum, reflects the parking requirement for which it was originally approved. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.250 Building code compliance.

The owner seeking conversion shall file a request with the Building and Safety Bureau for a special code compliance inspection. The report from such inspection of all units to be converted must be received by the Planning Bureau before an application for a tentative map for a conversion is considered complete. Such report shall list all violations relating to the applicable requirements in Title 18 of the Long Beach Municipal Code which may cause health or safety hazards as determined by the Building and Safety Bureau.

The subdivider shall correct all listed violations prior to approval of the final map.

Such fees as are established by City Council resolution shall be paid for the inspection and for any subsequent inspection as is necessary to ensure that corrections have been completed. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.260 Major system corrections.

The owner shall submit with the application for tentative map approval for conversion, inspection reports from State licensed contractors for the heating and plumbing systems of the project, as well as reports for an inspection of the roof and an inspection for termites. All such inspections shall have been conducted within three (3) months prior to the submittal of the tentative map. Any corrections or repairs recommended as reasonably necessary within the next five (5) years shall be provided for prior to approval of the final map. (ORD-23-0051 § 1(Exh. A), 2023)

23.32.265 Exemptions.

For exceptions, see Article 5 of this Chapter. (ORD-23-0051 § 1(Exh. A), 2023)

ARTICLE 4. MIXED USE CONVERSIONS.

20.32.510 Conversions.

In any project in which conversion to mixed residential unit use and commercial/industrial use is proposed, the applicable provisions of Articles 2 and 3, as determined by the City shall apply to the use proposed for each of the individual units. (ORD-23-0051 § 1(Exh. A), 2023)

ARTICLE 5. EXCEPTIONS AND SPECIAL REQUIREMENTS

20.32.520 Exceptions.

Generally, exceptions to any of the requirements of this Chapter 20.32 may be granted, provided that the exception will not be inconsistent with General Plan, the intent of this Chapter 20.32 or the intent of specific provisions being exempted, and based on written findings of fact in the record that support this conclusion. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.530 Exceptions—Conversions to limited equity cooperatives.

Conversion of a residential rental project to limited equity cooperatives may be excepted from the requirements of Sections 20.32.110, 20.32.130, 20.32.140, 20.32.150, 20.32.160.D, 20.32.170. Sections 20.32.070 and 20.32.080 may also be excepted for any tenant wishing to become a member of the cooperative. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.540 Exceptions—Conversions of community apartment or stock cooperatives to condominiums.

Conversion of an existing community apartment or a stock cooperative, which was established prior to August 4, 1978, to a residential condominium may be excepted from the requirements of Sections 20.32.110, 20.32.130, 20.32.140, 20.32.150, 20.32.160.A, 20.32.160.D, and 20.32.170. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.550 Special requirements—Conversion of a stock cooperative or a community apartment project to a condominium.

A stock cooperative or a community apartment project shall not be converted to a condominium, unless the required number of owners in the project, as specified in the bylaws or other documents, have voted in favor of such conversion. If no documents expressly specify the number of votes required to approve such a conversion, a majority vote of the owners in the project shall be required. (ORD-23-0051 § 1(Exh. A), 2023)

ARTICLE 6. DISCLOSURE OF PRIOR OCCUPANCY STATUS

20.32.680 Purpose.

Any buyer of a unit of multi-family housing is making a substantial personal investment. As buildings being offered for sale may vary substantially in quality and that variation may not be apparent, each buyer should be provided some items of background on the building prior to committing to purchase. (ORD-23-0051 § 1(Exh. A), 2023)

20.32.690 Disclosure.

Any person selling a unit in a building converted to a form of multiple ownership under the provisions of Chapter 20.32, or any person representing or acting on behalf of a person selling a unit in such building shall disclose to anyone intending to buy such unit by means of inclusion in the conditions, covenants and restrictions applying to the building the following items of information:

A. The date the building was built (date of final building inspection or original certificate of occupancy);

B. The form of ownership of the building prior to conversion under Chapter 20.32 (rental, community apartment, stock cooperative, limited equity cooperative, or condominium) together with

a description as to how that form of ownership differs from the one under which the units are offered for sale; and

C. A full listing of the building improvement requirements required for conversion. Any exceptions to the standards of Sections 20.32.090—20.32.160, including those granted in Section 20.32.530 or 20.32.540, which have been granted to the project shall be listed separately and clearly indicate that such improvements have not been made to the building. All improvement requirements shall be fully described and not referenced only by the Municipal Code section. (ORD-23-0051 § 1(Exh. A), 2023)

CHAPTER 20.34 SUBDIVISION OF A MOBILEHOME PARK

ARTICLE 1. CONVERSION TO ANOTHER USE

20.34.010 Change of use.

As used in this Chapter 20.34, change of use shall mean a change from use as a mobilehome park to any other residential or nonresidential use. Consistent with guidance from Government Code Section 65915(c) (3) (A), the new development shall replace existing on-site mobilehome units affordable to lower-income households with new housing options at a one-to-one ratio. (ORD-23-0051 § 1(Exh. A), 2023)

20.34.020 Impact report.

At the time of filing a tentative tract or parcel map for a subdivision to be created from the conversion of a mobilehome park to another use, the subdivider shall also file a report on the impact of the conversion upon the displaced residents of the mobilehome park to be converted. In determining the impact of the conversion on displaced mobilehome park residents, the report shall address the availability of adequate replacement space in mobilehome parks. The following information shall be included in the required Conversion Impact Report:

A. Legal description of the property and description of the proposed use to replace the mobilehome park.

B. Schedule for the mobilehome park conversion.

C. Total number of spaces in the mobilehome park and current rental rate for each space, and if the park owns the mobilehome unit on the site, the combined rental rate for the units and the space.

D. Names and addresses of all residents and whether or not the mobilehome park is their primary place of residence.

E. Manufacturer date, size, length of occupancy, and the appraised fair market value of each mobilehome located in the park not owned by the mobilehome park. The appraisal shall be performed by a professional appraiser.

F. Estimates from a moving company for tear down and set up costs for displaced tenants to move their mobilehome to a new park.

G. Itemized list of available mobilehome spaces within a 20-mile radius for displaced residents to relocate to.

H. Completed pre-conversion questionnaire. (ORD-23-0051 § 1(Exh. A), 2023)

20.34.030 Impact report available to residents of the mobilehome.

The subdivider shall be responsible for delivering a copy of the impact report to each resident of a mobilehome within the project at least thirty (30) days prior scheduling the tentative map before the Planning Commission for a public hearing date. The subdivider shall provide evidence to the City that impact reports were delivered and received by each residents for the public record. (ORD-23-0051 § 1(Exh. A), 2023)

20.34.040 Impact mitigation requirements.

A. In reviewing the proposed subdivision, the Planning Commission shall be required to:

1. Take steps to mitigate any significant impact by rezoning another site or sites for additional replacement of mobilehome park housing;

2. Find that there already exists land zoned for replacement housing or adequate space in other mobilehome parks for those residents who will be placed; or

3. Require the subdivider to take steps to mitigate any significant adverse impact of the conversion on the ability of displaced mobilehome park residents to find adequate space in a mobilehome park; and

4. Require the subdivider to provide for the full cost of moving the mobilehome to a new location of the mobilehome owner's choice or purchase the mobilehome from the mobilehome owner at fair market value. Fair market value shall be determined by an appraisal by a licensed appraiser or realtor acceptable to both the subdivider and mobilehome owner. The provision of moving expenses or purchase shall be the choice of the mobilehome owner, provided that relocation expenses shall not exceed the fair market value of the mobilehome. The provisions contained in this subsection shall not apply to a mobilehome owned by the landowner. (ORD-23-0051 § 1(Exh. A), 2023)

20.34.050 Termination of tenancy.

A. After approval of a tentative map, the mobilehome park owner shall give each resident a minimum of twelve (12) months' notice of the termination of tenancy.

B. Such notice shall disclose and describe in detail the nature of the change of use and relocation assistance and benefits that will be available to that tenant.

C. Such notice shall be delivered by a certified mail and receipts of this notification by each resident shall be furnished to the Community Development Department. (ORD-23-0051 § 1(Exh. A), 2023)

20.34.060 New resident disclosure.

Any person who locates a mobilehome or rents/leases a mobilehome in a mobilehome park for which a request for a change of use has been filed, shall receive written notice of the proposed change of use before any contract or lease agreement is executed. (ORD-23-0051 § 1(Exh. A), 2023)

ARTICLE 2. CONVERSION OF A MOBILEHOME PARK TO A CONDOMINIUM, COMMUNITY APARTMENT OR STOCK COOPERATIVE

20.34.070 Applicable conversion regulations.

Where an existing mobilehome park is being converted into a mobilehome condominium, community apartment or stock cooperative, the provision for condominium conversions set forth in Chapter 20.32 shall apply, except:

A. The minimum termination of tenancy shall be twelve (12) months; and

B. Neither the maximum amount of moving expenses provided by Section 20.32.070 nor special displacement benefits shall apply, and the full cost of relocation shall be provided by the mobile home park owner. (ORD-23-0051 § 1(Exh. A), 2023)

ARTICLE 3. SUBDIVISION OF AN EXISTING MOBILEHOME PARK TO CREATE INDIVIDUAL OWNERSHIP LOTS

20.34.080 Right of first refusal.

Upon the subdivision of the existing mobilehome park, any park resident who had established residency in the mobilehome park as of the date of the issuance of a subdivision public report from the Department of Real Estate shall have a right of first refusal to purchase the lot upon which the tenants mobilehome is located for a period of twelve (12) months from the date of issuance of the subdivision public report. The price to be paid by such existing resident for the lot under the tenants mobilehome shall be the initial offering price for that lot during the twelve (12) month right of first refusal period. (ORD-23-0051 § 1(Exh. A), 2023)

20.34.090 Lifetime leases.

Lifetime leases for the occupied lots shall be offered to mobilehome owners who elect neither to purchase their site nor to relocate. The right to enter into a lifetime lease shall expire no earlier

than the period of twelve (12) months from the date of issuance of the subdivision public report issued by the Department of Real Estate. All lifetime leases shall include the following conditions:

A. Mobilehome owners shall have the option of canceling the lease at any time upon thirty (30) days' written notice to the mobilehome park owners.

B. Mobilehome owners cannot be evicted except pursuant to Article 6 of the State Mobilehome Residency Law, Civil Code Section 798.55 et seq.

C. Terms and conditions of the lifetime lot lease shall be the same as those contained in the current lease or rental agreement for the mobilehome space.

D. To avoid economic displacement of all non-purchasing residents, any rent increases shall comply with Section 66427.5(f) of the California Government Code. (ORD-23-0051 § 1(Exh. A), 2023)

20.34.100 Compliance with State law.

The subdivider of the mobilehome park shall comply with all applicable State and local laws in effect at the time of the subdivision and shall have given all required notices to the existing and incoming park residents during the subdivision process, including:

A. The subdivider shall offer each existing tenant an option to either purchase the condominium or subdivided unit, which is to be created by the conversion of the park to resident ownership, or to continue residency as a tenant.

B. The subdivider shall file a report on the impact of the conversion upon residents of the mobile home park to be converted to resident owned subdivided interest.

C. The subdivider shall make a copy of the report available to each resident of the mobilehome park at least thirty (30) days prior to the hearing on the map by the hearing body.

D. Survey of residents is required:

1. The subdivider shall obtain a survey of support of residents of the mobilehome park for the proposed conversion.

2. The survey of support shall be conducted in accordance with an agreement between the subdivider and a resident homeowners' association, if any, that is independent of the subdivider or mobilehome park owner.

3. The survey shall be obtained pursuant to a written ballot.

4. The survey shall be conducted so that each occupied mobilehome space has one vote.

5. The results of the survey shall be submitted to the Community Development Department upon the filing of the tentative tract or parcel map, to be considered in the hearing as to whether to approve, conditionally approve, or disapprove the map, and the hearing body may disapprove the map if it finds that the results of the survey have not demonstrated the support of at least a majority of the park's homeowners.

E. The subdivider shall be subject to a hearing. The scope of the hearing shall be limited to the issue of compliance with this section. The hearing body may approve, conditionally approve, or disapprove the map.

F. The subdivider shall be required to avoid the economic displacement of all non-purchasing residents in accordance with the following:

1. As to non-purchasing residents who are not lower income households, as defined in Section 50079.5 of the Health and Safety Code, the monthly rent, including any applicable fees or charges for use of any pre-conversion amenities, may increase from the pre-conversion rent to market levels, as defined in an appraisal conducted in accordance with nationally recognized professional appraisal standards, in equal annual increases over a four-year period.

2. As to non-purchasing residents who are lower income households, as defined in Section 50079.5 of the Health and Safety Code, the monthly rent, including any applicable fees or charges for use of any pre-conversion amenities, may increase from the pre-conversion rent by an amount equal to the average monthly increase in rent in the four years immediately preceding the conversion, except that in no event shall the monthly rent be increased by an amount greater than the average

monthly percentage increase in the Consumer Price Index for the most recently reported period. (ORD-23-0051 § 1(Exh. A), 2023)

20.34.110 Infrastructure facilities survey required.

Prior to approval of the final map, the applicant and/or successors shall provide the City, and all purchasers, with a copy of an infrastructure facilities survey to be conducted by a qualified firm approved by the Community Development Department. The survey shall indicate the life expectancy of the infrastructure (including, but not limited to, sewer, water, gas, electric, streets and common areas) and a replacement strategy for aging infrastructure including a financing strategy. Condition assessment shall include video inspection of sewer pipelines and repair history of all underground facilities, and shall indicate existing deficiencies. If the survey identifies deficiencies, the applicant and/or successors shall repair the deficiencies to comply with applicable health and safety requirements. Nothing in this ordinance shall obligate the Long Beach Water Department to take over the ownership or maintenance of existing private water or sewer systems. (ORD-23-0051 § 1(Exh. A), 2023)

CHAPTER 20.36 DEFINITIONS*

20.36.010 Generally.

A. Whenever any words or phrases used in these regulations are not defined in this Section but are defined elsewhere in the Subdivision Map Act or other regulation of the City, such definitions shall apply as though set forth herein in full, unless the context clearly indicates a contrary intention.

B. For purposes of these regulations, the following words and phrases shall be construed as defined in this Section. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.015 Advisory agency.

The official body or designated official having the authority by local ordinance to approve, conditionally approve, or disapprove tentative maps and other subdivision related proceedings. Depending on the type of map or related subdivision request, this includes the Community Development Director, the Director of Public Works, the Zoning Administrator, the Planning Commission, and the City Council. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.020 Airspace subdivision.

"Airspace subdivision" is a three-dimensional subdivision of the space above or below a lot, or partially above and below a lot, having finite width, length, and upper and lower elevations, occupied by a building or portion thereof. Airspace subdivisions divide property ownership into three-dimensional spaces, often stacked upon one another. An airspace subdivision differs from a common interest subdivision development in that the owners of the airspace lots are not required to share interest in a common area within the map boundaries. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.025 Certificate of compliance.

A certificate prepared and recorded by the City which indicates that the division of certain real property complies with applicable provisions of the Subdivision Regulations and the Subdivision Map Act in cases where there is no adequate public record that a parcel of land was legally created. A recorded certificate of compliance completes the public record that the parcel is recognized as a separate legal parcel. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.030 Common interest subdivision.

"Common interest subdivision" includes subdivided land which includes a separate interest in real property combined with an interest in common with others. Common interest subdivisions include community apartments, condominium projects, planned developments and stock cooperatives consistent with the Davis-Stirling Common Interest Development Act. (ORD-23-0051 § 1(Exh. A), 2023)

*State law reference—Statutory authority definitions contained in the Subdivision Map Act, Gov. Code § 66414.

20.36.035 Community apartment.

A community apartment is a project in which an undivided interest in the land is coupled with the right of exclusive occupancy of any apartment located therein as defined in Section 4104 of the California Civil Code and referenced in Section 11004 of the California Business and Professions Code. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.040 Condominium.

An estate in real property consisting of an undivided interest in common in a portion of a real property together with a separate interest in airspace in a residential, industrial, or commercial building on such real property. A condominium, may include, in addition, a separate interest in other portions of such real property as defined in Section 4125 of the California Civil Code. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.045 Condominium plan.

A description of a survey map of a condominium project which refers to monumentation of the ground. A condominium plan is also a three-dimensional description of a condominium project, one or more dimensions of which may extended for an indefinite distance upwards or downwards, in sufficient detail to identify the common areas and each separate interest.

Conversion Definitions (terms used in Chapter 20.32).

A. "Conversion project, residential unit use to residential unit use" means an existing multi-family residential rental property used exclusively for residential purposes, proposed for conversion to a residential condominium, residential stock cooperative, or community apartment project to be used exclusively for residential purposes, through recordation of a tract or parcel map.

B. "Conversion project, commercial/industrial use to commercial/industrial use" means an existing commercial or industrial property used exclusively for commercial purposes or for manufacturing or other industrial activities, proposed for conversion to a condominium or stock cooperative which is to be used exclusively for commercial or industrial purposes through recordation of a tract or parcel map.

C. "Conversion project, residential unit use to commercial/industrial use" means an existing multi-family residential rental property used exclusively for residential purposes, proposed for conversion to a condominium or stock cooperative, other than a residential condominium or residential stock cooperative, which is to be used exclusively for commercial or industrial purposes, through recordation of a tract or parcel map.

D. "Conversion project, commercial/industrial use to residential unit use" means an existing commercial or industrial property used exclusively for commercial purposes or for manufacturing or other industrial activity, proposed for conversion to a residential condominium, residential stock cooperative or community apartment to be used exclusively for residential purposes through recordation of a tract or parcel map.

E. "Existing building" means a building that a certificate of occupancy has been issued prior to filing of a tentative map.

F. "Median rent" means that rent or one-forty-eighth of median income as established by the United States Department of Housing and Urban Development or as recognized by the California Department of Housing and Community Development for the statistical unit for which Long Beach is a part for the most recent time period available.

G. "Multi-family" means any building or complex of buildings containing two (2) or more dwelling units.

H. "Owner" means the owner of any rental project and any person or persons acting in behalf of and with the consent of the owner.

I. "Project" means the building or building complex being converted.

J. "Tenant" means a person or family occupying a dwelling unit; or a person(s) or a firm operating commercial or industrial activities with the permission of the property owner (or a manager authorized to grant permission to occupy a rental

property) by a rental or lease agreement. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.050 Contiguous parcels.

Contiguous parcels refer to a lot or parcel of land which shares all or part of a common lot line with another lot or parcel of land. If lots are part of a subdivision, they are considered contiguous even if separated by roads, streets, utility easements, or railroad rights-of-way. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.055 Covenants, Conditions & Restrictions (CC&Rs).

"Covenants, Conditions & Restrictions (CC&Rs)" is a legal document that is filed with the County Clerk-Recorder and made an official part of the real estate records that run with the land. The CC&Rs provide the power and legal authority to form a homeowner's association and administer and enforce rules on a group of homes or condominium complex. When living in a home or condominium that is restricted by CC&Rs, an owner agrees to certain additional restrictions to be part of a shared community. For example, most homeowner associations have smoking restrictions, parking and noise level rules, aesthetic guidelines, and development restrictions on changes to units. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.060 Dedication.

"Dedication" is a transfer of land by its owner to public ownership, to be used for public purpose. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.065 Drainage facility.

"Drainage facility" means any device or structure which may be used to control the flow of water, including but not limited to, pipes, ditches, berms, channels, gutters, curbs, walls, pavement, and appurtenant safety devices. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.070 Environmental clearance.

An environmental review procedure processed in accordance with the applicable guidelines and procedures pursuant to the California Environmental Quality Act. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.075 Parcel map.

A parcel map involving a subdivision of four (4) or fewer parcels is the recording instrument for all subdivisions for which a (tentative) parcel map is required unless waived as provided in these subdivision regulations. Certain project types listed in Section 20.06.020 A. may be processed with a tentative and parcel map rather than a final/tract map regardless of the number of lots proposed. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.080 Final tract map.

A final tract map is the recording instrument for a tract map involving a subdivision of five (5) or more lots, or five (5) or more condominium, community apartment, to stock cooperative units, prepared pursuant to these regulations and applicable provisions of the Subdivision Map Act for recordation in the office of the County Recorder. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.085 Flag lot.

"Flag lot" means a lot predominantly situated behind another lot and having access to a street by means of a narrow portion of the flag lot extending out to the street. Flag lots have a general configuration in the shape of an "L". (ORD-23-0051 § 1(Exh. A), 2023)

20.36.090 Freeway regional corridor.

Regional corridors emphasize traffic movement and are designed for intraregional and intercommunity mobility with limited access points. These linkages are designed to serve multiple types of modes of transportation and discourage on-street parking. A divided highway for through traffic with full control of access and with grade separations at intersections and declared to be such in compliance with the California Streets and Highways Code. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.095 Frontage road or service road.

A street lying adjacent and approximately parallel to and separated from a freeway or regional

corridor and which affords direct access to abutting properties. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.100 Geological hazard.

A hazard inherent in the crust of the earth, or artificially created, which is dangerous or potentially dangerous to life, property, or improvements due to the movement, failure, or shifting of earth. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.105 Illegal lots.

Illegal lots refer to remnant parcels that were not originally created legally through a recorded map procedure consistent with the State of California Subdivision Map Act and applicable City Subdivision Ordinance. These remnant parcels are often nonconforming in terms of meeting lot area and other dimensional requirements such as lot width and length. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.110 Land surveyor.

A land surveyor is any person who is authorized to practice land surveying and is licensed by the State of California. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.120 Lease, building.

The right to occupy and use a building or portion of a building for a designated term. It often contains a right to use common parking or other facilities on the same or adjacent parcels. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.125 Lease, ground.

The right to occupy and use a parcel of land, or a portion thereof, with or without a building or buildings on it for a designated term. It usually contains all parking and other facilities within the lease area. A division of land for purposes of leasing is a subdivision as defined in these regulations. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.130 Limited equity housing cooperative or a workforce housing cooperative trust.

A form of stock cooperative where the ownership corporation is a nonprofit corporation established with state or federal financial assistance as defined in Section 1103.4 of the California Business and Professions Code, and also meets the criteria of Section 11003.2 and Sections 817 and 817.1 of the Civil Code, as applicable. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.135 Lot, legal.

A parcel of land, the boundaries of which have been established in conformance with the State Subdivision Map Act and these regulations, and is identified on a recorded parcel map or final/tract map, a record of survey in accordance with the applicable laws, or a certificate of compliance approved by the City and recorded with the Los Angeles County Recorder. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.140 Lot area.

"Lot area" means the total horizontal area within the lot lines of a lot typically expressed in square feet or acres. Land area displayed in acreage shall be shown to three decimal places. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.145 Lot area, net.

Net area is the total area within the property lines of the development site, excluding the following:

1. Street rights-of-way;
2. Easements for flood control;
3. Water areas such as Alamitos Bay or Los Cerritos Channel. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.150 Lot line adjustment.

An adjustment of the boundary between four (4) or fewer adjacent legal lots where the land taken from one (1) lot is added to an adjacent lot, and where a greater number of lots than originally existed is not thereby created.

Multiple lot line adjustments submitted sequentially or concurrently, when five or more parcels exist, circumventing the Subdivision Map Act will not be allowed. A subdivision map will be

required in these instances. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.155 Merger.

In accordance with Subdivision Map Act Section 66499.20.3, the consolidation of two (2) or more contiguous recorded lots into a single parcel.

Multiple mergers submitted sequentially or concurrently, when five or more parcels exist, circumventing the Subdivision Map Act will not be allowed. A subdivision map will be required in these instances. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.160 Model home.

A residential unit erected in a proposed project which is temporarily used as a sales office and example of housing floor plan finishes. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.170 Monument.

"Monument," sometimes referred to as "survey monument," is a durable, permanent marker set by a land surveyor to mark or reference a point on a property or land line which is permanently marked or tagged with the certificate number of the land surveyor setting it. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.175 Owner.

Any person, persons, corporation or other legal entity who is the owner of record with the Los Angeles County Recorder's office. Also any person or persons acting with the authorization of the owner on behalf of the owner. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.180 Own your own.

"Own your own" colloquial form of common interest (see Section 20.36.030). (ORD-23-0051 § 1(Exh. A), 2023)

21.36.185 Parcel.

"Parcel" is created by a parcel map. A lot is created by a lot line adjustment or final/tract map. Lettered lots are for nonbuilding sites. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.190 Parcel map.

A map showing a subdivision for which a tentative or final tract map is not required which is prepared in accordance with these regulations and with applicable provisions of the Subdivision Map Act, for recordation in the office of the County Recorder. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.200 Plat map.

"Plat map" is a document drawn to scale, prepared by a Licensed Surveyor of qualified Engineer, showing the divisions of a piece of land. The plat map is the graphical representation of the legal description. The plat map is recorded as an Exhibit B with the legal description, Exhibit A. The plat map gives the legal description of pieces of real property, lot, street, and block number. The map shows the land subdivided into lots showing the location and boundaries of individual parcels with the streets, alleys, easements. The plat map shall be based upon a field survey. Boundary location and determination is the practice of land surveying according to Section 8726 of the California Business and Professions Code and as such, plat maps must include the signature and seal of a licensed land surveyor pursuant to Section 8761(d) of the California Business and Professions Code. Boundaries shown on plat maps that are not previously shown on a subdivision map, record of survey or official map must have a record of survey filed pursuant to Section 8762 of the California Business and Professions Code.

Plat maps, as part of a conveyance document, must be accompanied by a written legal description. Plat maps will not be accepted for recordation without a legal description. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.205 Planned development.

"Planned development" means a real property development other than a community apartment project, a condominium project, or a stock cooperative where a separate interest is created in a lot, parcel, area, or space and may have the following features:

A. Common area that is owned either by an association or in common by the owners of the

separate interests who possess appurtenant rights to the beneficial use and enjoyment of the common area.

B. Common area and an association that maintains the common area with the power to levy assessments that may become a lien upon the separate interests in accordance with Civil Code Section 5650(a).

C. Planned development subdivisions often are developed in conjunction with a Planned Unit Zoning Process to tailor property development standards for the unique characteristics of the project (see Section 21.31.300 of the Zoning Regulations). (ORD-23-0051 § 1(Exh. A), 2023)

20.36.210 Public Resources.

"Public Resources" refers to the natural systems and features in the community that provide environmental benefits to residents. These natural systems and features include geographical, biological, geological, and other resources, and encompass elements including air and water quality, wildlife habitat, scenic and agricultural lands, watersheds, Native American scared lands, and historic features. It is the goal of the California Environmental Quality Act (CEQA) to evaluate the impacts of new projects on these public resources. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.220 Qualified subdivision map preparer.

A qualified subdivision map preparer is either a California registered civil engineer or a licensed land surveyor who is legally allowed to prepare subdivision related maps. Civil engineers with licenses prior to January 1, 1982 (with a license number before 33966) are authorized to practice all land surveying and engineering surveying. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.225 Reservation.

A reservation is a portion of the acreage of a subdivision that is reserved for public use; not applicable to alley widening or widening of abutting streets which are not designated as highways. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.230 Revised tentative map.

A tentative map showing a revised arrangement of the streets, alleys, easements or lots, or a modification of the boundary of the property for which a tentative map was previously approved by the City. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.235 Right-of-Way.

"Right-of-way" means any easement or land owned by the City and used or designated for use as a street, parkway, alley, utility corridor, walkway, promenade, or bike path, and the surfaces thereof, and includes any right-of-way to be dedicated in the future. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.240 Sidewalk.

A paved surface or leveled area separated from the street and used as a pedestrian walkway. Public sidewalks are typically located along streets, within the right-of-way or easement, separated by a curb, planter, or both from the street, and designated for preferential use by pedestrians. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.243 Sequentially.

Sequentially is defined as any readjustment or merger of a parcel which had been previously adjusted or merged in the past five years. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.245 Site Plan.

An exhibit depicting the existing and proposed conditions of a property. The site plan shall be consistent with the current California Building Code Section 107.2.5 stating a site plan shall have an accurate boundary. Boundary location and determination is the practice of land surveying according to Section 8726 of the California Business and Professions Code and as such, site plans must include the signature and seal of a licensed land surveyor pursuant to Section 8761(d) of the California Business and Professions Code. Boundaries shown on site plans that are not previously shown on a subdivision map, record of survey or official map must have a record of survey filed pursuant

to Section 8762 of the California Business and Professions Code. Site plans shall include the information set forth in Section 20.24.030. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.247 Special flood hazard area.

An area having special flood, mudflow or flood-related erosion hazards and shown on a Flood Hazard Boundary Map (FHBM) or a Flood Insurance Rate Map. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.250 Stock cooperative.

A stock cooperative is a corporation as defined in Section 11003.2 of the California Business and Professions Code formed or utilized primarily for the purpose of holding title to improve real property in which all or substantially all shareholders have a right of exclusive occupancy of a portion of the real property, which right is transferable only with the transfer of shares of stock in the corporation. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.260 Street.

"Street" means a way for vehicular traffic, whether designated as a street, highway, road, avenue, boulevard, lane, place, way, or other name. "Street" does not include a path or alley. Unless otherwise indicated, the term street shall refer to both public and private streets. Public streets are forms of right-of-way. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.265 Subdivider.

A person, firm, corporation, partnership or association who proposes to divide, divides, or causes to be divided real property into a subdivision for the subdivider or for others. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.270 Subdivision.

Any improved or unimproved real property, or any portion thereof, shown on the latest section map of the City of Long Beach as a unit or as contiguous units, which is divided into two (2) or more lots for the purpose of sale, lease, or financing, whether immediate or future. Property shall be considered as contiguous units even if it is separated by roads, streets, utility easements, or railroad rights-of-way. Any conveyance of land to a governmental agency, public entity, or public utility shall not be considered a division of land for purposes of computing the number of parcels. Subdivision includes a condominium project, a community apartment project, or the conversion of five (5) or more existing dwelling units to a stock cooperative. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.273 Subdivision Map Act.

The Subdivision Map Act of the State of California, Section 66410 et seq., Division 2 of Title 7 of the California Government Code or as hereafter amended. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.275 Surveyor.

"Surveyor" is used synonymously with land surveyor. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.280 Tentative map.

A map prepared in accordance with the provisions of these regulations and the applicable provisions of the Subdivision Map Act for the purpose of showing the design of a proposed subdivision and the existing conditions in and around it. Such map need not be based on an accurate or detailed final survey of the property. A tentative map shall be required prior to the approval of a final tract or parcel map. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.285 Tract map.

Generally, a tentative map for the subdivision of a parcel, site, or piece of land into five or more lots or units, unless any of the circumstances described in Section 20.06.020(A) apply where the subdivision can be accommodated with a parcel map. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.290 Traffic-control devices.

Traffic-control devices are signs, signals, pavement markings, and other officially authorized

devices. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.295 Unit.

A unit consists of a separate interest in a space defined in a condominium plan which may consist of air, earth, or water (example includes parking space, space in a marina and mobile home park space) in combination with an undivided interest in common areas established in a condominium. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.300 Vacation.

The complete or partial abandonment or termination of the public right to use a street, highway, or public service easement. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.305 Vesting tentative map.

A vesting tentative map is similar to regular Tentative Maps except that the approval confers a vested right to proceed with development in substantial compliance with the ordinance, policies, and standards in effect at the time the vesting map application is deemed complete per Government Code Section 65493. (ORD-23-0051 § 1(Exh. A), 2023)

20.36.310 Waived Parcel Map.

A parcel map with a waiver of a tentative map (no bonds, must be monumented prior to approval). A certificate of compliance shall be recorded with the map. (ORD-23-0051 § 1(Exh. A), 2023)

PRIOR CODE CROSS-REFERENCE TABLE

This table provides users with the legislative history and the current disposition of the sections in the prior municipal code.

Thus, prior code Section 1200.1 was derived from Ordinance C-4665 and currently appears in this code as 1.36.030.

The legislative history information was derived from the Long Beach Municipal Code, published in 1955 and supplemented through Ordinance C-5224, passed December 9, 1975.

Prior code §	Ordinance History	Herein
1100		Not codified
1103		Not codified
1104		Not codified
1105		Not codified
1106		Not codified
1107		Not codified
1109		Not codified
1110		Not codified
1111		Not codified
1200		1.36.010
1200.1	Ord. C-4665, 1967	1.36.030
1200.2		1.36.020
1200.3		1.36.040
1201		1.36.050
1300		1.08.010
1301		1.08.060
1302		1.08.020
1303		1.08.030
1304		1.08.040
1305		1.08.120
1306		1.08.070
1307		1.08.110
1308		1.08.050
1309		1.08.100
1310		1.08.080
1311		1.08.090
1312		1.08.140
1400	Ord. C-3629, 1956	1.08.130
1500		1.12.010
1600	Ord. C-3943, 1959	1.16.010
1700	Ord. C-4984, 1971; Ord. C-3613, 1956	1.20.010
2100		2.06.010
2211		2.03.140
2212 (Rules 1—12)	Ord. C-4369, 1963; Ord. C-5043, 1972; Ord. C-5189, 1975	2.03.010—2.03.120
2212 (Rule13)		Repealed by C-6003
2213		2.06.050
2215		Not codified
2215.1		Not codified

Prior code §	Ordinance History	Herein
2215.2		Not codified
2215.3		Not codified
2215.4		Not codified
2215.5		Not codified
2215.6		Not codified
2215.7		Not codified
2215.8		Not codified
2215.9		Not codified
2215.10		Not codified
2215.11		Not codified
2215.12		Not codified
2215.13		Not codified
2215.14		Not codified
2215.15		Not codified
2215.16		Not codified
2215.17		Not codified
2220		Repealed by C-6930
2220.1		Repealed by C-6930
2310	Ord. C-4715, 1968; Ord. C-4697, 1967	2.18.010
2310.1		2.18.050
2310.2		2.18.060
2310.3	Ord. C-4697, 1967	2.18.070
2310.4		2.18.080
2310.5		2.18.090
2310.6		2.18.100
2310.7		2.18.110
2310.8		2.18.020
2310.9		2.18.040
2310.10		2.18.050
2315—2315.35		Repealed by C-6175
2320		2.42.010
2320.1	Ord. C-4241, 1962	2.42.020
2320.2		2.42.030
2330		Repealed by C-6159

Prior code §	Ordinance History	Herein
2330.1		Repealed by C-6159
2330.2		Repealed by C-6159
2335		2.54.010
2336		2.54.005
2350	Ord. C-4976, 1971	2.69.010
2350.1	Ord. C-4976, 1971	2.69.020
2350.2	Ord. C-4976, 1971	2.69.030
2350.3	Ord. C-4976, 1971	2.69.040
2350.4	Ord. C-4976, 1971	2.69.060
2350.5	Ord. C-4976, 1971	2.69.070
2350.6	Ord. C-4976, 1971	2.69.050
2350.7	Ord. C-4976, 1971	2.69.080
2350.8	Ord. C-4976, 1971	2.69.090
2350.9	Ord. C-4976, 1971	2.69.100
2350.10	Ord. C-4976, 1971	2.69.110
2360	Ord. C-4184, 1961	2.66.010
2360.1	Ord. C-4184, 1961	2.66.020
2360.2	Ord. C-4184, 1961	2.66.030
2360.3	Ord. C-4184, 1961	2.66.040
2360.4	Ord. C-4184, 1961	2.66.050
2360.5	Ord. C-4184, 1961	2.66.060
2360.6	Ord. C-4184, 1961	2.66.070
2360.7	Ord. C-4184, 1961	2.66.080
2370	Ord. C-4633, 1966	2.27.010
2370.1	Ord. C-4633, 1966	2.27.020
2370.2	Ord. C-4633, 1966	2.27.030
2380	Ord. C-4133, 1961	Repealed by C-7382
2380.1	Ord. C-4133, 1961	Repealed by C-7382
2380.2	Ord. C-4133, 1961	Repealed by C-7382
2395	Ord. C-5115, 1974	2.57.010
2395.1	Ord. C-5115, 1974	2.57.020
2395.2	Ord. C-5115, 1974	2.57.030
2397		2.33.010
2397.1		2.33.020

Prior code §	Ordinance History	Herein
2397.2		2.33.030
2398		2.36.010
2398.1		2.36.020
2398.2		2.36.030
2398.3		2.36.040
2398.4		2.36.050
2398.5		2.36.060
2399		2.63.010
2399.1		2.63.020
2399.2		2.63.030
2399.3		2.63.040
2399.4		2.63.050
2399.5		2.63.060
2399.6		2.63.070
2399.7		2.63.080
2399.8		2.63.090
2399.9		2.63.100
2400		2.21.010—2.21.040
2411	Ord. C-3616, 1956	3.60.010
2412	Ord. C-4204, 1961; Ord. C-3616, 1956	3.60.020
2413	Ord. C-3616, 1956	3.60.040
2414	Ord. C-5095, 1973; Ord. C-4204, 1961; Ord. C-3616, 1956	3.60.050
2415	Ord. C-5095, 1973; Ord. C-4204, 1961; Ord. C-3616, 1956	3.60.060
2416	Ord. C-3616, 1956	3.60.030
2416.1	Ord. C-5095, 1973	3.60.070
2420	Ord. C-3616, 1956	3.60.090
2420.1	Ord. C-3616, 1956	3.60.080
2450		3.64.010
2451		3.64.030
2451.1		3.64.040
2452		3.64.050
2453		3.64.070
2453.1		3.64.060
2454		3.64.120
2455		3.64.100
2456		3.64.110
2457		3.64.080
2458		3.64.090

Prior code §	Ordinance History	Herein
2459	Ord. C-5030, 1972	3.64.020
2460	Ord. C-4685, 1967	3.36.010
2470	Ord. C-4702, 1967	3.56.010
2471	Ord. C-4702, 1967	3.56.020
2472	Ord. C-4702, 1967	3.56.040
2473	Ord. C-4702, 1967	3.56.060
2474	Ord. C-4702, 1967	3.56.050
2475	Ord. C-4702, 1967	3.56.080
2476	Ord. C-4702, 1967	3.56.090
2477	Ord. C-4702, 1967	3.56.070
2478	Ord. C-4702, 1967	3.56.030
2479	Ord. C-4702, 1967	3.56.100
2480	Ord. C-4875, 1970	3.68.010
2480.1	Ord. C-4875, 1970	3.68.020
2480.2	Ord. C-4875, 1970	3.68.050
2480.3	Ord. C-5052, 1973; Ord. C-4875, 1970	3.68.030
2480.4	Ord. C-4875, 1970	3.68.040
2480.5	Ord. C-4875, 1970	3.68.060
2480.6	Ord. C-4875, 1970	3.68.070
2480.6.1	Ord. C-5172, 1975	3.68.080
2480.6.2		3.68.090
2480.7	Ord. C-4875, 1970	3.68.100
2480.8	Ord. C-4875, 1970	3.68.110
2480.9	Ord. C-4875, 1970	3.68.130
2480.10	Ord. C-5094, 1973; Ord. C-4875, 1970	3.68.140
2480.11	Ord. C-4875, 1970	Repealed by C-5094
2480.12	Ord. C-4875, 1970	3.68.150
2480.13	Ord. C-4875, 1970	3.68.120
2480.14	Ord. C-4875, 1970	3.68.160
2480.15	Ord. C-4875, 1970	Not codified
2500.1—2500.363		Not codified
2611	Ord. C-4738, 1968	3.16.010
2611.1	Ord. C-4738, 1968	3.16.020
2612		3.32.010
2612.1		3.32.020
2612.2		3.32.030
2613	Ord. C-4382, 1963	3.08.010
2613.1	Ord. C-4382, 1963	3.08.020

Prior code §	Ordinance History	Herein
2613.2	Ord. C-4382, 1963	3.08.030
2614	Ord. C-4487, 1964	3.24.010
2614.1	Ord. C-4487	3.24.020
2614.2	Ord. C-4487, 1964	3.24.030
2614.3	Ord. C-4487, 1964	3.24.040
2615		3.28.010
2615.1		3.28.020
2615.2		3.28.030
2620		3.40.010
2620.1		3.40.020
2620.2		3.40.030
2630		3.44.010
2631		3.44.020
2670		3.04.010
2670.1		3.04.020
2670.2		3.04.030
2670.3		3.04.040
2670.4		3.04.050
2670.5		3.04.060
2670.6		3.04.070
2670.7		3.04.080
2670.8		3.04.090
2670.9		3.04.100
2670.10		3.04.110
2670.11		3.04.120
2670.12		3.04.130
2670.13		3.04.140
2670.14		3.04.150
2670.15		3.04.160
2710	Ord. C-4877, 1970	3.48.010
2710.1		3.48.020
2711		2.83.010
2711.1		2.83.020
2715		3.48.030
2715.1		3.48.040
2715.2		3.48.050
2715.3		3.48.060
2715.4		3.48.070

Prior code §	Ordinance History	Herein
2720		Repealed by 05-0013
2720.1		2.06.020
2730	Ord. C-5175, 1975	2.84.010
2740		Repealed by C-7173
2740.1		Repealed by C-7173
2740.2		Repealed by C-7173
2750		3.52.110
2750.1		3.52.120
2750.2		3.52.130
2750.3		3.52.140
2750.4		3.52.150
2751		Repealed by C-5618
2752		Repealed by C-5618
2760	Ord. C-5102, 1973	Ch. 1.28
2761	Ord. C-5102, 1973	Ch. 1.28
2762	Ord. C-5102, 1973	Ch. 1.28
2770	Ord. C-5212, 1975	3.20.010
2770.1	Ord. C-5212, 1975	3.20.020
2770.2	Ord. C-5212, 1975	Repealed by C-6169
2780		2.93.010
2780.1		2.93.020
2780.2		2.93.030
2780.3		2.93.040
2781		2.96.010
2800		2.72.010
2801		2.72.020
2802		2.72.030
2803		2.72.040
2804		2.72.050
2805		2.72.060
2806		2.72.070
2807		2.72.080
2808		2.72.090

Prior code §	Ordinance History	Herein
2809		2.72.100
2810		2.72.110
2811		2.72.120
2812		2.72.130
2900		2.84.050
3100.100	Ord. C-5018, 1972; Ord. C-5011, 1972	Repealed by C-7822
3200		Repealed by 07-0062
3200.1		Repealed by 07-0062
3300.1		12.04.010
3300.2		12.04.020
3300.2.5		12.04.030—12.04.440
3300.3		12.64.010
3300.4		12.64.020
3300.4.5		12.64.030
3300.4.6		12.64.040
3300.5		12.08.010
3300.6		12.08.020—12.08.250
3300.7		12.08.260—12.08.320
3300.8		12.12.010
3300.9		12.12.020
3300.10		12.12.030
3300.11		12.12.040
3300.12		12.12.050
3300.13		12.12.060—12.12.100
3300.14		12.12.110—12.12.170
3300.15		12.12.180
3300.16		12.12.190
3300.17		12.12.200
3300.18		12.12.210
3300.19		12.12.220
3300.20		12.12.230
3300.21		12.12.240

Prior code §	Ordinance History	Herein
3300.22		12.12.250
3300.23		12.12.260
3300.24		12.12.270
3300.25		12.16.010
3300.26		12.16.020
3300.27		12.16.030
3300.28		12.16.040
3300.28.1		12.16.050
3300.29		12.20.010
3300.30		12.20.020
3300.31		12.24.010
3300.32		12.24.020
3300.33		12.28.010
3300.34		12.28.020
3300.35		12.28.030
3300.36		12.28.040
3300.37		12.28.050
3300.38		12.32.010
3300.39		12.32.020
3300.40		12.32.030
3300.41		12.32.040
3300.42		12.36.010
3300.43		12.36.020
3300.44		12.36.030
3300.45		12.36.040
3300.46		12.36.050
3300.47		12.36.060
3300.48		12.36.070
3300.49		12.40.010
3300.50		12.40.020
3300.51		12.40.030
3300.52		12.40.040
3300.53		12.44.010
3300.54		12.44.020
3300.55		12.44.030
3300.56		12.44.040
3300.57		12.48.010
3300.58		12.48.020

Prior code §	Ordinance History	Herein
3300.59		12.48.030
3300.60		12.48.040
3300.61		12.48.050
3300.62		12.48.060
3300.63		12.52.010
3300.64		12.52.020
3300.65		12.52.030
3300.66		12.52.040
3300.67		12.52.050
3300.68		12.52.060
3300.69		12.52.070
3300.70		12.52.080
3300.71		12.52.090
3300.72		12.60.010
3410.1	Ord. C-5108, 1974	10.02.010—10.02.160
3410.2		10.04.010
3410.3		10.04.020
3410.4	Ord. C-5151, 1974	10.04.030
3410.4.1		10.04.040
3410.4.2		10.04.050
3410.5		10.64.010
3410.6	Ord. C-4491, 1964	10.42.010—10.42.030
3410.7		10.64.020
3410.8		10.64.030
3410.9		14.04.010
3410.10(a)		14.04.020
3410.10(b)		14.36.010—14.36.050
3410.11		14.04.030
3410.12		10.08.010
3410.13		10.08.020
3410.14		10.08.030
3410.15		10.08.040
3410.16		10.08.050
3410.17		10.08.060
3410.18		10.08.070
3410.19		10.08.080

Prior code §	Ordinance History	Herein
3410.20	Ord. C-4787, 1968	10.08.090
3410.21		10.08.100
3410.25		10.10.010
3410.26		10.10.020
3410.27		10.10.030
3410.28		10.10.040
3410.30		10.10.050
3410.37		10.14.010
3410.39		Repealed by C-5398
3410.45		10.20.010
3410.46		10.20.020
3410.47		10.20.030
3410.48		10.20.040
3410.49		10.20.050
3410.55		10.38.010
3410.57		10.38.020
3410.58		10.38.030
3410.59		10.38.040
3410.60		10.38.050
3410.61		10.38.060
3410.62		10.38.070
3410.63		10.38.080
3410.64	Ord. C-4541, 1965; Ord. C-5088, 1973	10.38.090
3410.65	Ord. C-5199, 1975	10.38.100
3410.66	Ord. C-5184, 1975	10.38.110
3410.67	Ord. C-4938, 1971	10.38.120
3410.68		10.38.130
3410.71	Ord. C-5130, 1974	10.16.010—10.16.030
3410.72		Repealed by C-5398
3410.73	Ord. C-4787, 1968	10.08.110
3410.75		10.58.010
3410.76		10.58.020
3410.77		10.58.030
3410.78		10.58.040
3410.79		10.58.050
3410.85		10.22.010

Prior code §	Ordinance History	Herein
3410.86		10.22.020
3410.87		10.22.030
3410.88		10.22.040
3410.89		10.22.050
3410.90		10.24.010
3410.91		10.22.060
3410.92		Repealed by C-5398
3410.93		Repealed by C-5398
3410.94		10.22.070
3410.95		10.22.080
3410.96		10.22.090
3410.97	Ord. C-4681, 1967	10.22.100
3410.98		10.34.010
3410.98.1		10.34.020
3410.99		10.34.030
3410.100		10.26.010
3410.101	Ord. C-4595, 1966	10.26.020
3410.102		10.26.030
3410.103		10.26.040
3410.104		10.22.110
3410.105		Repealed by C-5398
3410.106		10.24.030
3410.107		10.24.050
3410.108		10.24.120
3410.109		10.22.120
3410.110		10.22.130
3410.111		10.24.090
3410.112	Ord. C-4491, 1964	10.22.140
3410.113		10.22.150
3410.115		10.18.010
3410.116	Ord. C-5184, 1975	10.40.010
3410.117		10.18.020
3410.118		10.40.020
3410.119		10.18.030
3410.120	Ord. C-5091, 1973; Ord. C-5157, 1974; Ord. C-5198, 1975	10.12.010
3410.121	Ord. C-5091, 1973; Ord. C-5097, 1973; Ord. C-5198, 1975	10.12.020

Prior code §	Ordinance History	Herein
3410.122		Repealed by C-7469
3410.123		Repealed by C-7469
3410.124		Repealed by C-5091
3410.124.1		Repealed by C-5091
3410.124.2		Repealed by C-5091
3410.125	Ord. C-5002, 1972	10.40.030
3410.126	Ord. C-5224, 1975; Ord. C-5208, 1975; Ord. C-5192, 1975; Ord. C-5157, 1974; Ord. C-5097, 1973; Ord. C-5084, 1973; Ord. C-4969, 1971; Ord. C-4956, 1971; Ord. C-4947, 1971; Ord. C-4943, 1971; Ord. C-4904, 1970; Ord. C-4885, 1970; Ord. C-4879, 1970; Ord. C-4871, 1970; Ord. C-4851, 1970; Ord. C-4838, 1969; Ord. C-4794, 1969; Ord. C-4724, 1968; Ord. C-4705, 1967; Ord. C-4624, 1966; Ord. C-4579, 1966; Ord. C-4509, 1965; Ord. C-4491, 1964	10.20.060
3410.127	Ord. C-5224, 1975; Ord. C-5214, 1975; Ord. C-5210, 1975; Ord. C-5208, 1975; Ord. C-5198, 1975; Ord. C-5192, 1975; Ord. C-5179, 1975; Ord. C-5178, 1975; Ord. C-5174, 1975; Ord. C-5167, 1975; Ord. C-5157, 1974; Ord. C-5156, 1974; Ord. C-5144, 1974; Ord. C-5137, 1974; Ord. C-5130, 1974; Ord. C-5114, 1974; Ord. C-5112, 1974; Ord. C-5107, 1974; Ord. C-5097, 1973; Ord. C-5092, 1973; Ord. C-5088, 1973; Ord. C-5084, 1973; Ord. C-5074, 1973; Ord. C-5070, 1973; Ord. C-5065, 1973; Ord. C-5056, 1973; Ord. C-5054, 1973; Ord. C-5049, 1973; Ord. C-5045, 1973; Ord. C-5042, 1972; Ord. C-5040, 1972; Ord. C-5033, 1972; Ord. C-5026, 1972; Ord. C-5021, 1972; Ord. C-5010, 1972; Ord. C-5005, 1972; Ord. C-5001, 1972; Ord. C-4998, 1972; Ord. C-4997, 1972; Ord. C-4988, 1972; Ord. C-4983, 1971; Ord. C-4978, 1971; Ord. C-4975, 1971; Ord. C-4969, 1971; Ord. C-4965, 1971; Ord. C-4962, 1971; Ord. C-4961, 1971; Ord. C-4956, 1971; Ord. C-4952, 1971; Ord. C-4948, 1971; Ord. C-4947, 1971; Ord. C-4945, 1971; Ord. C-4943, 1971; Ord. C-4939, 1971; Ord. C-4938, 1971; Ord. C-4935, 1971; Ord. C-4926, 1971;	

Prior code §	Ordinance History	Herein
	Ord. C-4922, 1971; Ord. C-4920, 1971; Ord. C-4914, 1970; Ord. C-4913, 1970; Ord. C-4912, 1970; Ord. C-4909, 1970; Ord. C-4905, 1970; Ord. C-4900, 1970; Ord. C-4898, 1970; Ord. C-4894, 1970; Ord. C-4887, 1970; Ord. C-4879, 1970; Ord. C-4878, 1970; Ord. C-4876, 1970; Ord. C-4873, 1970; Ord. C-4872, 1970; Ord. C-4871, 1970; Ord. C-4868, 1970; Ord. C-4866, 1970; Ord. C-4855, 1970; Ord. C-4851, 1970; Ord. C-4847, 1969; Ord. C-4845, 1969; Ord. C-4842, 1969; Ord. C-4838, 1969; Ord. C-4818, 1969; Ord. C-4799, 1969; Ord. C-4797, 1969; Ord. C-4794, 1969; Ord. C-4789, 1969; Ord. C-4773, 1968; Ord. C-4769, 1968; Ord. C-4767, 1968; Ord. C-4766, 1968; Ord. C-4764, 1968; Ord. C-4762, 1968; Ord. C-4755, 1968; Ord. C-4726, 1968; Ord. C-4720, 1968; Ord. C-4705, 1967; Ord. C-4684, 1967; Ord. C-4675, 1967; Ord. C-4671, 1967; Ord. C-4658, 1967; Ord. C-4653, 1967; Ord. C-4645, 1966; Ord. C-4641, 1966; Ord. C-4629, 1966; Ord. C-4605, 1966; Ord. C-4601, 1966; Ord. C-4594, 1966; Ord. C-4584, 1966; Ord. C-4580, 1966; Ord. C-4576, 1966; Ord. C-4571, 1965; Ord. C-4567, 1965; Ord. C-4551, 1965; Ord. C-4543, 1965; Ord. C-4534, 1965; Ord. C-4532, 1965; Ord. C-4520, 1965	10.20.070
3410.128	Ord. C-5198, 1975; Ord. C-5l92, 1975; Ord. C-5040, 1972; Ord. C-4952, 1971; Ord. C-4871, 1970; Ord. C-4831, 1969; Ord. C-4814, 1969; Ord. C-4767, 1968; Ord. C-4640, 1966; Ord. C-4624, 1966; Ord. C-4507, 1965; Ord. C-4491, 1964	10.14.020
3410.129		Repealed by C-5398
3410.130	Ord. C-5137, 1974; Ord. C-4688, 1967	10.24.060

Prior code §	Ordinance History	Herein
3410.131	Ord. C-5198, 1975; Ord. C-5179, 1975; Ord. C-5178, 1975; Ord. C-5161, 1974; Ord. C-5157, 1974; Ord. C-5144, 1974; Ord. C-5137, 1974; Ord. C-5134, 1974; Ord. C-5130, 1974; Ord. C-5114, 1974; Ord. C-5112, 1974; Ord. C-5092, 1973; Ord. C-5084, 1973; Ord. C-5074, 1973; Ord. C-5054, 1973; Ord. C-5045, 1973; Ord. C-5040, 1972; Ord. C-4997, 1972; Ord. C-4900, 1970; Ord. C-4898, 1970; Ord. C-4885, 1970; Ord. C-4871, 1970; Ord. C-4868, 1970; Ord. C-4852, 1970; Ord. C-4859, 1969; Ord. C-4832, 1969; Ord. C-4827, 1969; Ord. C-4817, 1969; Ord. C-4814, 1969; Ord. C-4809, 1969; Ord. C-4802, 1969; Ord. C-4797, 1969; Ord. C-4777, 1968; Ord. C-4762, 1968; Ord. C-4746, 1968; Ord. C-4735, 1968; Ord. C-4734, 1968; Ord. C-4732, 1968; Ord. C-4726, 1968; Ord. C-4723, 1968; Ord. C-4720, 1968; Ord. C-4716, 1968; Ord. C-4701, 1967; Ord. C-4669, 1967; Ord. C-4659, 1967; Ord. C-4691, 1967; Ord. C-4679, 1967; Ord. C-4650, 1967; Ord. C-4643. 1966; Ord. C-4641, 1966; Ord. C-4640, 1966; Ord. C-4637, 1966; Ord. C-4629, 1966; Ord. C-4627, 1966; Ord. C-4605, 1966; Ord. C-4600, 1966; Ord. C-4584, 1966; Ord. C-4578, 1966; Ord. C-4560, 1965; Ord. C-4552, 1965; Ord. C-4550, 1965; Ord. C-4549, 1965; Ord. C-4534, 1965; Ord. C-4528, 1965; Ord. C-4496, 1965; Ord. C-4491, 1964	10.24.070
3410.132	Ord. C-5198, 1975; Ord. C-5174, 1975; 10.24.040, 10.24.080; Ord. C-5159, 1974; Ord. C-5130, 1974; Ord. C-5114, 1974; Ord. C-5097, 1973; Ord. C-5088, 1973; Ord. C-5070, 1973; Ord. C-5049, 1973; Ord. C-5005, 1972; Ord. C-5001, 1972; Ord. C-4962, 1971; Ord. C-4696, 1967; Ord. C-4691, 1967; Ord. C-4670, 1967; Ord. C-4627, 1966; Ord. C-4529, 1965; Ord. C-4510, 1965	10.24.100
3410.133	Ord. C-5224, 1975; Ord. C-5164, 1975; Ord. C-5109, 1974; Ord. C-5097, 1973; Ord. C-5081, 1973; Ord. C-5065, 1973; Ord. C-5049, 1973; Ord. C-5033, 1972; Ord. C-4962, 1971; Ord. C-4904, 1970; Ord. C-4852, 1970; Ord. C-4821, 1969; Ord. C-4710, 1967; Ord. C-4640, 1966; Ord. C-4607, 1966; Ord. C-4582, 1966; Ord. C-4573, 1966	10.24.110
3410.134	Ord. C-5224, 1975; Ord. C-5210, 1975; Ord. C-5178, 1975; Ord. C-5164, 1975; Ord. C-5159, 1974; Ord. C-5144, 1974; Ord. C-5137, 1974; Ord. C-5109, 1974	10.24.120
3410.135	Ord. C-4628, 1966; Ord. C-4613, 1966	10.24.020

Prior code §	Ordinance History	Herein
3410.136	Ord. C-5224, 1975; Ord. C-5214, 1975; Ord. C-5070, 1973; Ord. C-5065, 1973; Ord. C-5054, 1973; Ord. C-5049, 1973; Ord. C-5042, 1972; Ord. C-5001, 1972; Ord. C-4969, 1971; Ord. C-4948, 1971; Ord. C-4945, 1971; Ord. C-4909, 1970; Ord. C-4894, 1970; Ord. C-4885, 1970; Ord. C-4878, 1970; Ord. C-4873, 1970; Ord. C-4871, 1970; Ord. C-4852, 1970; Ord. C-4850, 1966; Ord. C-4845, 1969; Ord. C-4838, 1969; Ord. C-4834, 1969; Ord. C-4827, 1969; Ord. C-4826, 1969; Ord. C-4825, 1969; Ord. C-4809, 1969; Ord. C-4804, 1969; Ord. C-4795, 1969; Ord. C-4791, 1969; Ord. C-4788, 1969; Ord. C-4780, 1968; Ord. C-4772, 1968; Ord. C-4766, 1968; Ord. C-4734, 1968; Ord. C-4729, 1968; Ord. C-4724, 1968; Ord. C-4684, 1967; Ord. C-4673, 1967; Ord. C-4671, 1967; Ord. C-4645, 1966; Ord. C-4641, 1966; Ord. C-4624, 1966; Ord. C-4571, 1965; Ord. C-4541, 1965; Ord. C-4526, 1965; Ord. C-4520, 1965; Ord. C-4509, 1965; Ord. C-4491, 1964	10.20.080
3410.137	Ord. C-5178, 1975; Ord. C-4338, 1969; Ord. C-4735, 1968; Ord. C-4707, 1967; Ord. C-4628, 1966; Ord. C-4614, 1966	10.58.060
3410.138	Ord. C-5208, 1975; Ord. C-5199, 1975; Ord. C-5174, 1975; Ord. C-5167, 1975; Ord. C-5159, 1974; Ord. C-5084, 1973; Ord. C-5006, 1972; Ord. C-4998, 1972; Ord. C-4983, 1971; Ord. C-4948, 1971; Ord. C-4947, 1971; Ord. C-4909, 1970; Ord. C-4905, 1970; Ord. C-4904, 1970; Ord. C-4879, 1970; Ord. C-4872, 1970; Ord. C-4766, 1968; Ord. C-4758, 1968; Ord. C-4696, 1967; Ord. C-4687, 1967; Ord. C-4681, 1967; Ord. C-4656, 1967; Ord. C-4654, 1967; Ord. C-4653, 1967; Ord. C-4600, 1966; Ord. C-4509, 1965; Ord. C-4469, 1967	10.08.120
3410.139		10.08.130
3410.200	Ord. C-4522, 1965	10.48.010
3410.201	Ord. C-4522, 1965	10.48.020
3410.202	Ord. C-4522, 1965	10.48.030
3410.203	Ord. C-4522, 1965	10.48.040
3410.204	Ord. C-4522, 1965	10.48.050
3410.205	Ord. C-4522, 1965	10.48.060
3410.206	Ord. C-4522, 1965	10.48.070
3410.207	Ord. C-4522, 1965	Repealed by C-6050
3410.300	Ord. C-5103, 1973	10.46.010
3410.301	Ord. C-5103, 1973	10.46.020
3410.302	Ord. C-5103, 1973	10.46.030

Prior code §	Ordinance History	Herein
3410.303	Ord. C-5103, 1973	10.46.040
3410.304	Ord. C-5103, 1973	10.46.050
3410.305	Ord. C-5103, 1973	10.46.060
3410.306	Ord. C-5103, 1973	10.46.070
3410.307	Ord. C-5103, 1973	10.46.080
3410.308	Ord. C-5103, 1973	10.46.090
3410.309	Ord. C-5103, 1973	10.46.100
3410.310	Ord. C-5103, 1973	10.46.110
3410.400	Ord. C-5181, 1975	10.54.010
3410.401	Ord. C-5181, 1975	10.54.020
3410.402	Ord. C-5181, 1975	10.54.030
3410.403	Ord. C-5216, 1975; Ord. C-5204, 1975; Ord. C-5191, 1975; Ord. C-5181, 1975	10.54.040
3410.500		10.52.010
3410.501		10.52.020
3410.502		10.52.030
3410.503		10.52.040
3410.600		10.32.010
3410.601		10.32.020
3410.602		10.32.030
3410.603		10.32.040
3410.604		10.32.050
3410.605		10.32.060
3410.606		10.32.080
3410.607		10.32.100
3410.608		10.32.120
3410.609		10.32.070
3410.610		10.32.090
3410.611		10.32.110
3410.700		10.36.010
3410.701		10.36.020
3410.702		10.36.030
3410.703		10.36.040
3420		Ch. 10.28
3420.1		Ch. 10.28
3420.2		Ch. 10.28
3420.3		Ch. 10.28
3420.4	Ord. C-5081, 1973	Ch. 10.28
3420.5		Ch. 10.28

Prior code §	Ordinance History	Herein
3420.6	Ord. C-5081, 1973	Ch. 10.28
3420.7		Ch. 10.28
3420.8		Ch. 10.28
3420.9		Ch. 10.28
3420.10		Ch. 10.28
3420.11		Ch. 10.28
3420.12	Ord. C-5109, 1974	Ch. 10.28
3430		Repealed by C-4882
3430.1—3430.4		Repealed by C-4482
3450		10.06.010
3450.1		10.06.020
3450.2		10.06.030
3450.3		10.06.040
3460		10.44.010
3460.1		10.44.020
3470		10.26.050
3470.1		Repealed by C-4482
3470.2		Repealed by C-4482
3470.3	Ord. C-4316, 1962	10.56.010
3470.4	Ord. C-4316, 1962	10.56.020
3470.5	Ord. C-4316, 1962	10.54.030
3470.6	Ord. C-4316, 1962	10.54.040
3470.7	Ord. C-4316, 1962	10.54.050
3470.8	Ord. C-4316, 1962	10.54.060
3510		2.15.050
3510.1		2.12.010
3510.2		Repealed by C-4039
3510.3		Repealed by C-4039
3510.4		Repealed by C-4039
3510.5		9.08.010
3510.6		9.08.020
3520	Ord. C-4103, 1960	2.15.030
3520.1	Ord. C-4103, 1960	2.15.040

Prior code §	Ordinance History	Herein
3530		6.28.010
3550		2.15.060
3550.1		2.15.070
3550.2		Repealed by C-5536
3550.3		Repealed by C-5536
3550.4		Repealed by C-5536
3550.5		Repealed by C-5536
3550.6		Repealed by C-5536
3550.7		Repealed by C-5536
3550.8		Repealed by C-5536
3550.9		Repealed by C-5536
5355.10		Repealed by C-5536
3550.11		Repealed by C-5536
3550.12		Repealed by C-5536
3550.13		Repealed by C-5536
3560	Ord. C-4897, 1970	Title 5
3560.1	Ord. C-4897, 1970	Title 5
3560.2	Ord. C-4897, 1970	Title 5
3560.3	Ord. C-4897, 1970	Title 5
3560.4	Ord. C-4897, 1970	Title 5
3560.5	Ord. C-4897, 1970	Title 5
3560.6	Ord. C-4897, 1970	Title 5
3560.7	Ord. C-4897, 1970	Title 5
3560.8	Ord. C-4897, 1970	Title 5
3560.9	Ord. C-4897, 1970	Title 5
3560.10	Ord. C-4897, 1970	Title 5
3560.11	Ord. C-4897, 1970	Title 5
3560.12	Ord. C-4897, 1970	Title 5
3560.13	Ord. C-4897, 1970	Title 5

Prior code §	Ordinance History	Herein
3560.14	Ord. C-4897, 1970	Title 5
3560.15	Ord. C-4897, 1970	Title 5
3560.16	Ord. C-4897, 1970	Title 5
3560.17	Ord. C-4897, 1970	Title 5
3560.18	Ord. C-4897, 1970	Title 5
3560.19	Ord. C-4897, 1970	Title 5
3560.20	Ord. C-4897, 1970	Title 5
3570		2.78.010
3570.1		2.78.020
3570.2	Ord. C-4991, 1972	2.78.040
3570.3		2.78.060
3570.4	Ord. C-5062, 1973	2.78.030
3570.5		2.78.050
3580	Ord. C-4642, 1966	2.15.010
3581		2.15.020
4110	Ord. C-4850, 1970	9.02.010—9.02.090
4120		Not codified
4120.1		Not codified
4120.2		Not codified
4120.3		Not codified
4120.4		Not codified
4120.5		Not codified
4120.6		Not codified
4120.7		Not codified
4120.8		Not codified
4120.9		Not codified
4120.10		Not codified
4120.11		Not codified
4120.12		Not codified
4120.13		Not codified
4120.14		Not codified
4120.15		Not codified
4120.16		Not codified
4130		9.30.010
4130.1		9.30.020
4130.2		Not codified
4130.3	Ord. C-4039, 1960	9.30.030
4130.4		9.30.040

Prior code §	Ordinance History	Herein
4130.5		9.62.010
4130.6		Not codified
4130.7		Not codified
4130.8		9.64.010
4130.9		Not codified
4130.10		9.64.020
4130.11		Not codified
4130.12		9.30.050
4140		Not codified
4140.1		Not codified
4140.2		Not codified
4140.3		Not codified
4140.4		Not codified
4140.5		Not codified
4140.6		Not codified
4140.7		9.24.010
4140.8		9.24.020
4140.9		9.24.030
4140.10		9.24.040
4140.11	Ord. C-4031, 1960	9.24.050
4140.12	Ord. C-4079, 1960	Not codified
4140.13		Not codified
4140.14		9.24.060
4140.15		9.24.070
4140.16		9.24.080
4140.17		Title 5
4140.18		Title 5
4140.19		Title 5
4140.20		Title 5
4140.21		Title 5
4140.22		Title 5
4140.23		Title 5
4140.24		Title 5
4140.25		Title 5
4140.26		Title 5
4140.27		Title 5
4140.28		Title 5
4140.29		Title 5

Prior code §	Ordinance History	Herein
4140.30		Title 5
4140.31		Title 5
4140.32		Title 5
4140.33		Title 5
4140.34		Title 5
4140.35		Title 5
4140.36		Title 5
4140.37		Title 5
4140.38		Title 5
4140.39		Title 5
4140.40		Title 5
4150		Not codified
4150.1		9.22.010
4150.2		9.22.020
4150.3		9.22.030
4150.4		9.22.040
4150.5	Ord. C-4185, 1961	9.22.050
4150.6		9.22.060
4160	Ord. C-3655, 1956	Not codified
4160.1		Not codified
4160.2		Not codified
4160.3		Not codified
4160.4		Not codified
4160.5		Not codified
4160.6		Not codified
4170		9.40.010
4170.1		9.40.020
4170.2		9.40.030
4180		Not codified
4180.1		Not codified
4180.2	Ord. C-4435, 1964	Title 5
4180.3	Ord. C-4859, 1970	Title 5
4180.3.1	Ord. C-4859, 1970	Title 5
4180.3.2	Ord. C-4859, 1970	Title 5
4180.3.3	Ord. C-4859, 1970	Title 5
4180.3.4	Ord. C-4859, 1970	Title 5
4180.3.5	Ord. C-4859, 1970	Title 5
4180.3.6	Ord. C-4859, 1970	Title 5

Prior code §	Ordinance History	Herein
4180.3.7	Ord. C-4859, 1970	Title 5
4180.3.8	Ord. C-4859, 1970	Title 5
4180.4		Not codified
4180.5		9.52.010
4180.6		Not codified
4180.7		9.52.020
4180.9		9.54.010
4180.9.1		9.54.020
4180.9.2		9.54.030
4180.9.3		9.54.040
4190	Ord. C-4850, 1970	9.32.010
4190.1	Ord. C-4850, 1970	9.32.020
4190.2	Ord. C-4850, 1970	9.32.030
4190.3	Ord. C-4850, 1970	9.32.040
4190.4	Ord. C-4850, 1970	9.32.050
4195	Ord. C-4883, 1970	9.20.010
4195.1	Ord. C-4883, 1970	9.20.020
4195.2	Ord. C-4883, 1970	9.20.030
4195.3	Ord. C-4883, 1970	9.20.040
4195.4	Ord. C-4883, 1970	Not codified
4210		Repealed by C-6413
4210.1		Repealed by C-6413
4210.2		Repealed by C-6413
4210.3		Repealed by C-6413
4211		Repealed by C-6413
4212		Repealed by C-6413
4220.1		Title 5
4220.2		Title 5
4220.3		Title 5
4220.4		Title 5
4220.5		Title 5
4220.6		Title 5
4220.7		Title 5
4220.8		Title 5

Prior code §	Ordinance History	Herein
4220.9		Title 5
4220.10		Title 5
4220.11		Repealed by C-6131
4220.12		Title 5
4220.13		Title 5
4220.14		Title 5
4220.15		Title 5
4260		9.14.010
4260.1		9.14.020
4270		Title 5
4270.1		Title 5
4270.2		Title 5
4270.3		Title 5
4270.4		Title 5
4270.5		Title 5
4270.6		Title 5
4270.7		Title 5
4270.8		Title 5
4270.9		Title 5
4270.10		Title 5
4270.11		Title 5
4270.12		Title 5
4270.13		Title 5
4280	Ord. C-5223, 1975	2.75.010
4280.1	Ord. C-5223, 1975	2.75.020
4280.2		Repealed by C-4039
4280.3		Repealed by C-4039
4300		Not codified
4300.1		Not codified
4300.2		Not codified
4300.3		Not codified
4300.4		Not codified
4300.5		Not codified
4300.6		Not codified
4300.7		Not codified
4300.8		Not codified

Prior code §	Ordinance History	Herein
4300.9		Not codified
4300.10		Not codified
4300.11		Not codified
4300.12		Not codified
4300.13		Not codified
4300.14		Not codified
4300.15		Not codified
4300.16		Not codified
4300.17		Not codified
4300.18		Not codified
4300.19		Not codified
4300.20		Not codified
4300.21		Not codified
4300.22		Not codified
4300.23		Not codified
4300.24		Not codified
4410		Not codified
4410.1		Not codified
4410.2		Not codified
4410.3		Not codified
4410.4		Not codified
4420	Ord. C-4039, 1960	Not codified
4420.1		Not codified
4430		8.80.010
4430.1		8.80.020
4430.2		8.80.030—8.80.050
4430.3		8.80.060—8.80.120
4430.4		8.80.130
4430.5		8.80.140
4430.6		8.80.150—8.80.160
4430.7		8.80.170—8.80.180
4430.8		8.80.190—8.80.200
4430.9		8.80.210—8.80.240
4430.10		8.80.250—8.80.330
4430.11		8.80.340—8.80.360
4430.12		8.80.370—8.80.410
4611		Repealed by C-5354

Prior code §	Ordinance History	Herein
4611.1		Repealed by C-5354
4611.2		Repealed by C-5354
4611.3		Repealed by C-5354
4611.4		Repealed by C-5354
4611.5		Repealed by C-5354
4611.6		Repealed by C-5354
4611.7		Repealed by C-5354
4611.8		Repealed by C-5354
4611.9		Repealed by C-5354
4611.10		8.76.010
4611.11		8.76.020
4611.12		8.76.030
4611.13		8.76.040
4611.14		8.76.050
4611.15		8.76.060
4611.16		8.76.070
4611.17		8.76.080
4611.18		8.76.090
4611.19		8.76.100
4611.20		8.76.110
4611.21		8.76.120
4611.22		8.76.130
4611.23		8.76.140—8.76.190
4611.24		8.76.200
4611.25		8.76.210
4612		9.46.010
4612.1		9.46.020
4613		16.04.070
4613.1		16.04.080
4614	Ord. C-4039, 1960	9.34.010
4615		8.72.010

Prior code §	Ordinance History	Herein
4616		Not codified
4616.1		Not codified
4617	Ord. C-5218, 1975	Ch. 8.68
4620		9.42.010
4620.1		9.42.020—9.42.090
4620.2	Ord. C-4930, 1971	9.42.100
4630		9.56.010
4630.1		9.56.020
4630.2		9.56.030
5110		2.24.010
5110.1	Ord. C-3980, 1959	2.24.020
5110.2		2.24.030
5110.3		2.24.040
5110.4		2.24.050
5110.5		2.24.060
5110.6		2.24.070
5110.7		2.24.080
5120		8.08.010
5120.3		8.08.020
5120.4		8.08.030
5120.5		8.08.040
5120.6		8.08.050
5120.7		8.08.060
5120.8		8.08.070
5120.9		8.08.080
5120.10	Ord. C-4039, 1960	8.08.090
5120.11		8.08.100
5120.12		8.08.110
5120.13		Repealed by C-4039
5120.14		8.08.120
5120.15		8.08.130
5120.16		8.08.140
5120.17	Ord. C-4039, 1960	8.08.150
5120.18	Ord. C-4039, 1960	8.08.160
5120.19	Ord. C-4039, 1960	8.08.170
5120.20	Ord. C-4039, 1960	8.08.180
5120.21		8.08.190
5120.22		8.08.200

Prior code §	Ordinance History	Herein
5120.23		8.08.210
5120.24		8.08.220
5120.25		8.08.230
5120.26		8.08.240
5120.27		8.08.250
5130		8.12.010
5130.1		8.12.020
5130.2		8.12.030
5140		8.48.010
5140.1		8.48.020
5140.3		8.48.030
5140.4		8.36.010
5140.5	Ord. C-4536, 1965	8.36.020
5140.6	Ord. C-4536, 1965	8.36.030
5140.7		8.36.040
5140.8		8.36.050
5140.9		8.36.060
5140.10		8.36.070
5140.11		8.36.080
5140.12		8.36.090
5140.13		8.36.100
5140.14		8.36.110
5140.15	Ord. C-3667, 1956	8.36.120
5150	Ord. C-4039, 1960	8.52.010
5160	Ord. C-4025, 1960	8.04.010
5210		Repealed by C-5320
5210.1		Repealed by C-5320
5210.2		Repealed by C-5320
5210.3		Repealed by C-5320
5210.4		Repealed by C-5320
5210.5		Repealed by C-5320
5210.6		Repealed by C-5320

Prior code §	Ordinance History	Herein
5210.7		Repealed by C-5320
5210.8		Repealed by C-5320
5210.9		Repealed by C-5320
5210.10		Repealed by C-5320
5210.11		Repealed by C-5320
5210.12		Repealed by C-5320
5210.13		Repealed by C-5320
5210.14		Repealed by C-5320
5210.15		Repealed by C-5320
5210.16		Repealed by C-5320
5210.17	Ord. C-4039, 1960	Repealed by C-5320
5210.18		Repealed by C-5320
5210.19		Repealed by C-5320
5220	Ord. C-3864, 1958	8.60.010
5220.1		8.60.020—8.60.070
5220.2		8.60.080
5220.3		8.60.090
5220.4		8.60.100
5220.5		8.60.110
5220.6		8.60.120
5220.7		8.60.130
5220.8		8.60.140—8.60.190
5220.9		8.60.200—8.60.230
5220.10		8.60.240
5220.11		8.60.250
5220.12		8.60.260
5230.		Chapter 8.56
5230.1		Chapter 8.56

Prior code §	Ordinance History	Herein
5230.2		Chapter 8.56
5230.3		Chapter 8.56
5230.4		Chapter 8.56
5230.5		Chapter 8.56
5230.6		Chapter 8.56
5230.7		Chapter 8.56
5230.8		Chapter 8.56
5230.9		Chapter 8.56
5230.10	Ord. C-4985, 1971	Chapter 8.56
5230.11		Chapter 8.56
5230.12		Chapter 8.56
5230.13		Chapter 8.56
5230.14		Chapter 8.56
5230.15		Chapter 8.56
5230.16		Chapter 8.56
5230.17		Chapter 8.56
5230.18		Chapter 8.56
5230.19		Chapter 8.56
5230.20		Chapter 8.56
5230.21		Chapter 8.56
5300—5300.23		Repealed by C-4137
5400		8.64.010
5400.1		8.64.020
5400.2		8.64.030
5400.3		8.64.040
5400.4		8.64.050
5400.5		8.64.060
5400.6		8.64.070
5400.7		8.64.080
5400.8		8.64.090
5400.9		8.64.100
5400.10		8.64.110
5400.11		8.64.120
5400.12		8.64.130
5510	Ord. C-4536, 1965; Ord. C-4039, 1960; Ord. C-3674, 1956	8.44.010
5510.1	Ord. C-3674, 1956	8.44.020
5510.2		8.44.100
5510.3		8.44.110

Prior code §	Ordinance History	Herein
5510.4		8.44.120
5510.5		8.44.130
5510.6		8.44.140
5510.7		8.44.150
5510.8		Repealed by C-4536
5510.9		8.44.160
5510.10		8.44.170
5510.11	Ord. C-3674, 1956	8.44.180
5510.12		8.44.190
5510.13		8.44.030
5510.13	Ord. C-3674, 1956	8.44.040
5510.14	Ord. C-3674, 1956	8.44.050
5510.15		Repealed by C-5320
5510.16	Ord. C-3674, 1956	8.44.060
5510.17	Ord. C-3674, 1956	8.44.070
5510.18		8.44.080
5510.19		8.44.090
5510.20		8.44.200
5510.21	Ord. C-4039, 1960	8.44.210
5510.22	Ord. C-3674, 1956	8.40.010
5510.23		Repealed by C-3891
5510.24	Ord. C-3674, 1956	8.40.020
5510.25	Ord. C-4246, 1962	8.40.030
5510.26	Ord. C-3674, 1956	8.40.040
5510.27	Ord. C-3674, 1956	8.40.050
5510.28	Ord. C-3674, 1956	8.40.060
5510.29	Ord. C-4536, 1965	8.40.070
5510.30	Ord. C-3674, 1956	8.40.080
5510.31	Ord. C-3674, 1956	8.40.090
5510.32	Ord. C-3674, 1956	8.40.100
5510.33	Ord. C-4536, 1965	8.40.110
5510.34	Ord. C-3674, 1956	8.40.120
5510.35	Ord. C-3674, 1956	8.40.130
5520		8.16.010
5520.1		8.16.020
5520.2		8.16.030

Prior code §	Ordinance History	Herein
5520.3		8.44.220
5520.4		8.44.230
5530		8.16.040
5530.1		8.16.050
5530.2		8.16.060
5530.3		8.16.070
5540		8.20.010
5540.1		8.20.020
5540.2		8.20.030
5540.3		8.20.040
5540.4		8.20.050
5540.5		8.20.060
5540.6		8.20.070
5540.7		8.20.080
5540.8		8.20.090
5540.9		8.20.100
5540.10		8.20.110
5540.11		8.20.120
5540.12		8.20.130
5540.13		8.20.140
5540.14		8.20.150
5540.15		8.20.160
5540.16		8.20.170
5550		8.32.010
5550.1		8.28.010
5550.2		8.28.020
5550.3	Ord. C-4039, 1960	8.28.030
5550.4		8.28.040
5550.5		8.28.050
5550.6		8.28.060
5550.7		8.28.070
5550.8		8.28.080
5550.9		8.28.090
5550.10		8.28.100
5550.11		8.28.110
5550.12		8.24.010
5550.14		8.24.020
5550.15		8.24.030

Prior code §	Ordinance History	Herein
5550.16		8.24.040
5550.17		8.24.050
5550.18		8.24.060
5550.19		8.24.070
5550.20		8.24.080
5550.21		8.24.090
5550.22		8.24.100
5550.23		8.24.110
5520.24		8.24.120
5560	Ord. C-4039, 1960	8.16.080
5560.1		Repealed by C-4039
5610		6.04.010
5610.1	Ord. C-3814, 1958	6.04.020
5610.2		6.16.010
5610.3		6.16.020
5610.4	Ord. C-4662, 1967	6.16.030
5610.5	Ord. C-4662, 1967	6.16.040
5610.6		6.16.050
5610.7		6.16.060
5610.8		6.16.070
5610.9		6.16.080
5610.10		6.04.030
5610.11		Repealed by C-4662
5610.12		6.08.010
5610.13		6.08.020
5610.14	Ord. C-5153, 1974	6.08.030
5610.15	Ord. C-4054, 1960	6.08.040
5610.16		6.08.050
5610.17	Ord. C-5153, 1974	6.08.060
5610.18		6.08.070
5610.19		6.08.080
5610.20		6.08.090
5610.21		6.16.090
5610.22	Ord. C-4617, 1966	6.16.100
5610.23		6.16.110
5610.24		6.16.120
5610.25		6.16.130

Prior code §	Ordinance History	Herein
5610.26		6.16.140
5610.27		6.16.150
5610.28		6.16.160
5610.29		6.12.010
5610.30		6.12.020
5610.31		6.12.030
5610.32		6.12.040
5610.33		6.12.050
5610.34		6.12.060
5610.35		6.12.070
5610.36		6.12.080
5610.38		6.12.090
5610.39		6.12.100
5610.40		6.04.040
5610.41		6.04.050
5610.42		6.04.060
5610.43		6.04.070
5610.44	Ord. C-3814, 1958	6.04.080
5610.45	Ord. C-5222, 1975	6.04.090
5610.46	Ord. C-4054, 1960	6.04.100
5610.47		6.04.110
5610.48		6.04.120
5610.50		6.16.170
5610.51		6.16.180
5610.52		6.16.190
5610.53	Ord. C-3814, 1958	6.12.110
5610.54	Ord. C-3814, 1958	6.12.120
5610.55	Ord. C-3814, 1958	6.12.130
5610.56	Ord. C-3814, 1958	6.12.140
5610.57	Ord. C-5222, 1975	6.16.200
5610.58	Ord. C-5222, 1975; Ord. C-4973, 1971	6.16.210
5610.59		6.16.220
5620	Ord. C-4129, 1961	6.20.010
5620.1		6.20.020
5620.2		6.20.030
5620.3		Repealed by C-5755
5620.4		6.24.010
5620.5		6.20.050

Prior code §	Ordinance History	Herein
5620.6		6.20.060
5620.7		6.20.070
5620.8		6.20.080
5620.9		6.20.090
5620.10		6.20.100
5620.11		6.20.110
5620.12	Ord. C-4085, 1960	6.20.120
5620.13		6.20.130
5620.14		6.20.140
5620.15		6.20.150
5620.16		6.20.160
5620.17		6.20.170
5620.18	Ord. C-4129, 1961	6.24.020
5620.19		6.16.230
5620.20		6.16.240
5710		15.32.010
5710.1		15.32.020
5710.2		15.32.030
5710.3		15.32.040
5710.4		15.32.050
5710.5		15.32.060
5710.6		15.32.070
5710.7		15.32.080
5710.8		15.32.090
5710.9		15.32.100
5710.10		15.32.110
5710.11		15.32.120
5710.12		15.32.130
5710.13		15.32.140
5710.14		15.32.150
5710.15		15.32.160
5710.16		15.32.170
5710.17		15.32.180
5710.18		15.32.190
5710.19		15.32.200
5710.20		15.32.210
5710.21		15.32.220
5710.22		15.32.230

Prior code §	Ordinance History	Herein
5710.23		15.32.240
6000		Title 5
6000.1		Title 5
6000.2		Title 5
6000.3		Title 5
6000.4		Title 5
6000.5		Title 5
6000.6		Title 5
6000.7		Title 5
6000.8		Title 5
6000.9		Title 5
6000.10		Title 5
6100		Title 5
6100.1		Title 5
6100.2		Title 5
6100.3		Title 5
6100.4	Ord. C-5202, 1975; Ord. C-4429, 1964	Title 5
6100.5		Title 5
6100.6		Title 5
6100.7		Title 5
6100.8	Ord. C-5202, 1975	Title 5
6100.9	Ord. C-5202, 1975	Title 5
6100.10	Ord. C-5202, 1975	Title 5
6100.11	Ord. C-5202, 1975	Title 5
6100.12	Ord. C-5202, 1975	Title 5
6100.13	Ord. C-5202, 1975	Title 5
6100.13.1	Ord. C-5202, 1975; Ord. C-4622, 1966	Title 5
6100.14	Ord. C-5202, 1975	Repealed by C-5399
6100.15	Ord. C-5202, 1975	Repealed by C-5399
6100.16	Ord. C-5202, 1975	Repealed by C-5399
6100.17	Ord. C-5202, 1975	Repealed by C-5399
6100.18	Ord. C-5202, 1975	Repealed by C-5399
6100.19	Ord. C-5202, 1975	Repealed by C-5399
6100.20	Ord. C-5202, 1975	Title 5

Prior code §	Ordinance History	Herein
6100.20.5	Ord. C-5202, 1975	Repealed by C-5399
6100.21	Ord. C-5202, 1975	Repealed by C-5399
6100.22	Ord. C-5202, 1975	Repealed by C-5399
6100.23	Ord. C-5202, 1975	Repealed by C-5399
6100.24	Ord. C-5202, 1975	Repealed by C-5399
6100.25		Title 5
6100.26	Ord. C-5202, 1975; Ord. C-4345, 1963	Title 5
6100.27	Ord. C-5202, 1975	Repealed by C-5399
6100.28	Ord. C-5202, 1975	Repealed by C-5399
6100.29	Ord. C-5202, 1975	Repealed by C-5399
6100.30	Ord. C-5202, 1975	Repealed by C-5399
6100.31	Ord. C-5202, 1975	Repealed by C-5399
6100.32	Ord. C-5202, 1975	Repealed by C-5399
6100.33	Ord. C-5202, 1975	Repealed by C-5399
6100.34	Ord. C-5202, 1975	Repealed by C-5399
6100.35	Ord. C-5202, 1975	Repealed by C-5399
6100.36	Ord. C-5202, 1975	Repealed by C-5399
6100.37	Ord. C-5202, 1975	Repealed by C-5399
6100.38	Ord. C-5202, 1975	Repealed by C-5399
6100.38.1	Ord. C-5202, 1975	Repealed by C-5399
6100.39	Ord. C-5202, 1975	Repealed by C-5399
6100.40	Ord. C-5202, 1975	Repealed by C-5399

Prior code §	Ordinance History	Herein
6100.41	Ord. C-5202, 1975	Repealed by C-5399
6100.42	Ord. C-5202, 1975	Repealed by C-5399
6100.43	Ord. C-5202, 1975	Title 5
6100.44	Ord. C-5202, 1975	Title 5
6100.45	Ord. C-5202, 1975	Title 5
6100.46	Ord. C-5202, 1975	Repealed by C-5399
6100.47	Ord. C-5202, 1975	Title 5
6100.48	Ord. C-5202, 1975	Repealed by C-5399
6100.53	Ord. C-5202, 1975	Repealed by C-5399
6100.54	Ord. C-5202, 1975	Repealed by C-5399
6100.55	Ord. C-5202, 1975	Repealed by C-5399
6100.57	Ord. C-5202, 1975	Repealed by C-5399
6100.58	Ord. C-5202, 1975	Title 5
6100.59	Ord. C-5202, 1975	Repealed by C-5399
6100.60	Ord. C-5202, 1975	Repealed by C-5399
6100.61	Ord. C-5202, 1975	Repealed by C-5399
6100.62		Repealed by C-5399
6100.63	Ord. C-5202, 1975	Repealed by C-5399
6100.64	Ord. C-5202, 1975	Repealed by C-5399
6100.65	Ord. C-5202, 1975	Repealed by C-5399
6100.70		Title 5
6100.71	Ord. C-5202, 1975	Repealed by C-5399
6100.72	Ord. C-5202, 1975	Repealed by C-5399
6100.73	Ord. C-5202, 1975	Repealed by C-5399

Prior code §	Ordinance History	Herein
6100.74	Ord. C-5202, 1975	Repealed by C-5399
6100.75	Ord. C-5202, 1975	Repealed by C-5399
6100.76	Ord. C-5202, 1975	Repealed by C-5399
6100.77	Ord. C-5202, 1975	Repealed by C-5399
6100.78	Ord. C-5202, 1975	Repealed by C-5399
6100.79	Ord. C-5202, 1975	Repealed by C-5399
6100.81	Ord. C-5202, 1975	Not codified
6100.82	Ord. C-5202, 1975	Repealed by C-5399
6100.83	Ord. C-5202, 1975	Not codified
6100.86	Ord. C-5202, 1975	Repealed by C-5399
6100.87	Ord. C-5202, 1975	Repealed by C-5399
6100.88	Ord. C-5202, 1975	Repealed by C-5399
6100.89	Ord. C-5202, 1975	Repealed by C-5399
6100.90		Repealed by C-5202
6100.91	Ord. C-5202, 1975	Repealed by C-5399
6100.92	Ord. C-5202, 1975	Repealed by C-5399
6100.93	Ord. C-5202, 1975	Repealed by C-5399
6100.94	Ord. C-5202, 1975	Title 5
6100.95	Ord. C-5202, 1975	Title 5
6100.96	Ord. C-5202, 1975	Repealed by C-5399
6100.97	Ord. C-5202, 1975	Repealed by C-5399
6100.98	Ord. C-5202, 1975	Repealed by C-5399
6100.99	Ord. C-5202, 1975	Repealed by C-5399

Prior code §	Ordinance History	Herein
6100.99.1	Ord. C-5196, 1975	Title 5
6100.99.2	Ord. C-4796, 1975	Title 5
6100.100	Ord. C-5202, 1975	Repealed by C-5399
6100.101	Ord. C-5202, 1975	Title 5
6100.102	Ord. C-5202, 1975	Repealed by C-5399
6100.103	Ord. C-5202, 1975	Repealed by C-5399
6100.104	Ord. C-5202, 1975	Repealed by C-5399
6100.105	Ord. C-5202, 1975	Repealed by C-5399
6100.109	Ord. C-5202, 1975	Repealed by C-5399
6100.110	Ord. C-5202, 1975	Repealed by C-5399
6100.111	Ord. C-5202, 1975	Repealed by C-5399
6100.112	Ord. C-5202, 1975	Not codified
6100.113	Ord. C-5202, 1975	Repealed by C-5399
6100.115	Ord. C-5202, 1975	Repealed by C-5399
6100.116	Ord. C-5202, 1975	Repealed by C-5399
6100.117	Ord. C-5202, 1975	Repealed by C-5399
6100.118	Ord. C-5202, 1975	Repealed by C-5399
6100.119	Ord. C-5202, 1975	Repealed by C-5399
6100.120	Ord. C-5202, 1975	Repealed by C-5399
6100.121	Ord. C-5202, 1975	Repealed by C-5399
6100.122	Ord. C-5202, 1975	Repealed by C-5399
6100.124	Ord. C-5202, 1975	Repealed by C-5399
6100.126	Ord. C-5202, 1975	Repealed by C-5399

Prior code §	Ordinance History	Herein
6100.127	Ord. C-5202, 1975	Repealed by C-5399
6100.128	Ord. C-5202, 1975	Repealed by C-5399
6100.130	Ord. C-5202, 1975	Repealed by C-5399
6100.131	Ord. C-5202, 1975	Repealed by C-5399
6100.132	Ord. C-5202, 1975	Repealed by C-5399
6100.135	Ord. C-5202, 1975	Title 5
6100.136	Ord. C-5215, 1975	Title 5
6100.137	Ord. C-5215, 1975	Title 5
6100.140	Ord. C-5202, 1975	Repealed by C-5399
6100.141	Ord. C-5202, 1975	Repealed by C-5399
6100.142	Ord. C-5202, 1975	Repealed by C-5399
6100.143	Ord. C-5202, 1975	Title 5
6100.144	Ord. C-5202, 1975	Repealed by C-5399
6100.145	Ord. C-5202, 1975	Repealed by C-5399
6100.146	Ord. C-5202, 1975	Repealed by C-5399
6100.147	Ord. C-5202, 1975	Repealed by C-5399
6100.148	Ord. C-5202, 1975	Repealed by C-5399
6100.149		Repealed by C-5202
6100.151	Ord. C-5202, 1975	Repealed by C-5399
6100.152	Ord. C-5202, 1975	Repealed by C-5399
6100.153	Ord. C-5202, 1975	Repealed by C-5399
6100.154	Ord. C-5202, 1975	Repealed by C-5399
6100.155	Ord. C-5202, 1975	Repealed by C-5399

Prior code §	Ordinance History	Herein
6100.156	Ord. C-5202, 1975	Repealed by C-5399
6100.157	Ord. C-5202, 1975	Repealed by C-5399
6100.158	Ord. C-5202, 1975	Repealed by C-5399
6100.159	Ord. C-5202, 1975	Repealed by C-5399
6100.160	Ord. C-5202, 1975	Repealed by C-5399
6100.161	Ord. C-5202, 1975	Repealed by C-5399
6100.162	Ord. C-5202, 1975	Repealed by C-5399
6100.163	Ord. C-5202, 1975	Repealed by C-5399
6100.164	Ord. C-5202, 1975	Repealed by C-5399
6100.165	Ord. C-5202, 1975	Repealed by C-5399
6100.166	Ord. C-5202, 1975	Repealed by C-5399
6100.167	Ord. C-5202, 1975	Repealed by C-5399
6100.168	Ord. C-5202, 1975	Repealed by C-5399
6100.169	Ord. C-5202, 1975	Repealed by C-5399
6100.170	Ord. C-5202, 1975	Title 5
6100.171	Ord. C-5202, 1975	Repealed by C-5399
6100.172	Ord. C-5202, 1975	Not codified
6100.174	Ord. C-5202, 1975	Repealed by C-5399
6100.175	Ord. C-5202, 1975	Repealed by C-5399
6100.176		Repealed by C-5399
6100.177		Repealed by C-5399
6100.178		Title 5

Prior code §	Ordinance History	Herein
6100.179		Repealed by C-5399
6100.180	Ord. C-5202, 1975	Repealed by C-5399
6100.181	Ord. C-5202, 1975	Repealed by C-5399
6100.182	Ord. C-5202, 1975	Repealed by C-5399
6100.183	Ord. C-5202, 1975	Repealed by C-5399
6100.184	Ord. C-5202, 1975	Title 5
6100.185	Ord. C-5202, 1975	Repealed by C-5399
6100.186	Ord. C-5202, 1975	Title 5
6100.187	Ord. C-5202, 1975	Repealed by C-5399
6100.188		Repealed by C-5399
6100.189		Repealed by C-5399
6100.190		Repealed by C-5399
6100.191		Repealed by C-5399
6100.191.5	Ord. C-5202, 1975	Repealed by C-5399
6100.192		Repealed by C-5399
6100.193		Repealed by C-5399
6100.194		Repealed by C-5399
6100.195		Repealed by C-5399
6100.196		Repealed by C-5399
6100.197		Title 5
6100.198		Repealed by C-5399
6100.199		Repealed by C-5399

Prior code §	Ordinance History	Herein
6100.200	Ord. C-5202, 1975	Repealed by C-5399
6100.201		Repealed by C-5399
6100.202	Ord. C-5180. 197S; Ord. C-5075, 1973	Title 5
6100.202.1		Title 5
6100.203		Repealed by C-5399
6100.204		Repealed by C-5399
6100.205		Title 5
6100.206		Title 5
6100.207		Repealed by C-5399
6100.208		Repealed by C-5399
6100.209		Repealed by C-5399
6100.210		Repealed by C-5399
6100.211		Repealed by C-5399
6100.212		Repealed by C-5399
6100.213		Repealed by C-5399
6100.214	Ord. C-5202, 1975	Repealed by C-5399
6100.215	Ord. C-4478, 1964	Repealed by C-5399
6100.216		Repealed by C-5399
6100.217		Repealed by C-5399
6100.218		Title 5
6100.219		Title 5
6100.220		Repealed by C-5399
6100.221	Ord. C-5202, 1975	Repealed by C-5399
6100.222		Repealed by C-5399

Prior code §	Ordinance History	Herein
6100.223		Repealed by C-5399
6100.224		Repealed by C-5399
6100.225		Title 5
6100.230	Ord. C-5173, 1975	10.50.010
6100.231	Ord. C-5173, 1975	10.50.020
6100.232	Ord. C-5173, 1975	10.50.030
6100.233	Ord. C-5173, 1975	10.50.040
6100.231	Ord. C-5173, 1975	10.50.050
6100.235	Ord. C-5173, 1975	10.50.060
6100.236	Ord. C-5173, 1975	10.50.070
6100.237	Ord. C-5173, 1975	10.50.080
6100.238	Ord. C-5173, 1975	10.50.090
6100.239	Ord. C-5173, 1975	10.50.100
6100.240	Ord. C-5173, 1975	10.50.110
6100.250		Title 5
6100.251		Title 5
6100.252		Title 5
6100.253		Title 5
6100.254		Title 5
6100.255		Title 5
6100.256		Title 5
6100.257		Title 5
6100.258		Title 5
6100.259		Title 5
6100.260		Title 5
6100.261		Title 5
6100.262		Title 5
6100.263		Title 5
6100.264		Title 5
6100.265		Title 5
6100.266		Title 5
6100.267		Title 5
6110		Title 5
6111		Title 5
6112		Title 5
6113		Title 5
6114		Title 5

Prior code §	Ordinance History	Herein
6115		Title 5
6116		Title 5
6117		Repealed by C-5399
6118		Title 5
6211		Title 5
6211.1		Title 5
6211.2		Title 5
6211.3		Title 5
6211.4		Title 5
6211.5		Title 5
6211.6		Title 5
6211.7	Ord. C-5202, 1975	Title 5
6211.8		Title 5
6211.9		Title 5
6211.10		Title 5
6211.11		Title 5
6211.12		Title 5
6211.13		Title 5
6211.14	Ord. C-4039, l960	Title 5
6211.15	Ord. C-4039.1960	Title 5
6211.16		Title 5
6211.17		Title 5
6211.18		Title 5
6211.19		Title 5
6211.20		Title 5
6211.21		Title 5
6211.22		Title 5
6211.23		Title 5
6212		Title 5
6212.1		Title 5
6212.2		Title 5
6212.3		Title 5
6212.4		Title 5
6213		Title 5
6213.1		Title 5
6213.2		Title 5
6213.3		Title 5
6213.4		Title 5

Prior code §	Ordinance History	Herein
6213.5		Title 5
6213.6		Title 5
6213.7		Title 5
6214		Title 5
6220		Title 5
6220.1		Title 5
6220.2		Title 5
6220.3		Title 5
6220.4		Title 5
6220.5		Title 5
6220.7		Title 5
6220.8		Title 5
6220.9		Title 5
6220.10		Title 5
6220.11		Title 5
6220.12		Title 5
6220.13		Title 5
6220.14		Title 5
6220.15		Title 5
6220.16		Title 5
6220.17		Title 5
6220.18		Title 5
6220.19		Title 5
6220.20		Title 5
6220.21		Title 5
6220.22		Title 5
6220.23		Title 5
6221		Title 5
6221.1	Ord. C-4080, 1960; Ord. C-3817, 1958	Repealed by C-5955
6221.2	Ord. C-3827, 1958	Title 5
6221.3	Ord. C-3827, 1958	Title 5
6221.4—6221.16		Repealed by C-3827
6222.		Title 5
6222.1		Title 5
6222.2		Title 5
6222.3		Title 5
6222.4		Title 5

Prior code §	Ordinance History	Herein
6222.5		Title 5
6222.6		Title 5
6222.7		Title 5
6222.8		Title 5
6222.9		Repealed by C-3901
6223		Title 5
6223.1		Title 5
6223.2		Title 5
6223.3	Ord. C-4433, 1964	Title 5
6223.4	Ord. C-4433, 1964	Title 5
6223.5	Ord. C-4433, 1964	Title 5
6223.6	Ord. C-4433, 1964	Title 5
6223.7	Ord. C-4433, 1964	Title 5
6223.8	Ord. C-4433, 1964	Title 5
6223.9	Ord. C-4433, 1964	Title 5
6223.10	Ord. C-4433, 1964	Title 5
6230	Ord. C-4041, 1960	Title 5
6230.1	Ord. C-3725, 1957	Title 5
6230.2	Ord. C-3803, 1957	Title 5
6230.3		Title 5
6230.4		Title 5
6230.5		Title 5
6230.6		Title 5
6230.7		Title 5
6230.8		Title 5
6230.9		Repealed by C-5525
6230.10		Repealed by C-5525
6230.11		Repealed by C-5525
6230.12	Ord. C-4070, 1960	Repealed by C-5525
6230.13		Repealed by C-5525
6230.14		Repealed by C-5525
6230.15		Repealed by C-5525

Prior code §	Ordinance History	Herein
6230.16		Repealed by C-5525
6230.17		Repealed by C-5525
6230.18		Repealed by C-5525
6230.19		Repealed by C-5525
6230.20		Repealed by C-5525
6230.21		Repealed by C-5525
6230.22		Repealed by C-5525
6230.23		Repealed by C-5525
6230.24		Repealed by C-5525
6230.26	Ord. C-3820, 1958	Repealed by C-5525
6230.27	Ord. C-5048, 1973; Ord. C-5031, 1972; Ord. C-3820, 1958	Repealed by C-5525
6230.28	Ord. C-3820, 1958	Repealed by C-5525
6230.29	Ord. C-5048, 1973; Ord. C-5031, 1972	Repealed by C-5525
6230.30		Repealed by C-5525
6230.31		Repealed by C-5525
6230.32		Repealed by C-5525
6230.33		Repealed by C-5525
6230.34		Repealed by C-5525
6230.35	Ord. C-3820, 1958	Repealed by C-5525
6230.36		Repealed by C-5525
6230.37	Ord. C-3820, 1958	Repealed by C-5525

Prior code §	Ordinance History	Herein
6230.38		Repealed by C-5525
6230.39	Ord. C-3820, 1958	Repealed by C-5525
6230.40		Repealed by C-5525
6230.41		Repealed by C-5525
6230.42		Repealed by C-5525
6230.42.5	Ord. C-3940, 1959	Repealed by C-5525
6230.43	Ord. C-3820, 1958	Repealed by C-5525
6230.44		Repealed by C-5525
6230.45	Ord. C-3820, 1958	Repealed by C-5525
6230.50		Title 5
6230.60		Title 5
6230.61		Title 5
6230.62		Title 5
6230.63		Title 5
6230.64		Title 5
6230.65		Title 5
6230.66		Title 5
6230.67		Title 5
6230.68		Title 5
6230.69		Title 5
6230.70		Title 5
6230.71		Title 5
6230.72		Title 5
6230.73		Title 5
6230.74		Title 5
6230.75		Title 5
6230.80		Repealed by C-5689
6230.81		Repealed by C-5689
6240	Ord. C-4319, 1962; Ord. C-3818, 1958; Ord. C-3687, 1956	Title 5
6240.1	Ord. C-4319, 1962; Ord. C-3818, 1958	Title 5

Prior code §	Ordinance History	Herein
6240.2	Ord. C-3933, 1959	Title 5
6240.3	Ord. C-3993, 1959	Title 5
6240.4		Title 5
6240.5		Title 5
6240.6		Title 5
6240.7		Title 5
6240.8	Ord. C-44l9, 1964	Title 5
6240.9		Title 5
6240.10		Title 5
6240.11		Title 5
6240.12		Title 5
6240.13		Title 5
6240.14		Repealed by C-4837
6240.15		Repealed by C-4511
6240.16		Title 5
6240.17		Title 5
6240.18		Title 5
6240.19		Title 5
6240.20		Title 5
6240.21		Title 5
6240.22		Title 5
6240.23		Title 5
6240.24		Title 5
6240.25		Title 5
6240.26		Title 5
6240.27		Title 5
6240.28		Title 5
6240.29		Title 5
6240.30		Title 5
6240.31		Title 5
6240.32		Title 5
6240.33		Title 5
6240.34		Title 5
6240.35		Title 5
6240.36		Title 5
6240.37		Title 5
6240.38		Title 5

Prior code §	Ordinance History	Herein
6241		Title 5
6241.1		Title 5
6241.2		Title 5
6241.3		Title 5
6241.4		Title 5
6241.5		Title 5
6241.6		Title 5
6241.7		Title 5
6241.8		Repealed by C-6065
6241.9		Title 5
6241.10		Title 5
6242		Title 5
6242.1		Title 5
6242.2		Title 5
6242.3		Title 5
6243		10.62.010
6243.1		10.62.020
6244		10.62.030
6244.1		10.62.040
6244.1		10.62.040
6245	Ord. C-3822, 1958	10.60.010
6245.1	Ord. C-3822, 1958	10.60.020
6245.2	Ord. C-3822, 1958	10.60.030
6245.3	Ord. C-3822, 1958	10.60.040
6251	Ord. C-3650, 1956	Title 5
6251.1		Title 5
6251.2		Title 5
6251.3		Title 5
6251.4		Title 5
6251.5		Title 5
6251.6		Title 5
6251.7		Title 5
6251.8		Title 5
6251.9		Title 5
6251.10		Title 5
6251.11		Title 5
6251.12		Title 5
6251.13		Title 5

Prior code §	Ordinance History	Herein
6251.14		Title 5
6251.15		Title 5
6251.16		Title 5
6251.17		Title 5
6251.18		Title 5
6251.19		Title 5
6251.20		Title 5
6251.21		Title 5
6251.23		Title 5
6251.24		Title 5
6251.25		Title 5
6251.26		Title 5
6251.27		Title 5
6251.28		Title 5
6251.29		Title 5
6251.30		Title 5
6251.31		Title 5
6251.32		Title 5
6252	Ord. C-4059, 1960	Title 5
6252.1	Ord. C-4059, 1960	Title 5
6252.2		Repealed by C-4059
6252.3	Ord. C-4059, 1960	Title 5
6252.4		Repealed by C-4059
6252.5	Ord. C-4059, 1960	Title 5
6252.6		Repealed by C-4059
6252.7	Ord. C-4059, 1960	Title 5
6252.8		Repealed by C-4059
6252.9	Ord. C-4059, 1960	Title 5
6252.10		Repealed by C-4059
6252.11	Ord. C-4059, 1960	Title 5
6252.12		Repealed by C-4059
6252.13	Ord. C-4059, 1960	Title 5
6252.14		Repealed by C-4059

Prior code §	Ordinance History	Herein
6252.15	Ord. C-4059, 1960	Title 5
6252.17	Ord. C-4059, 1960	Title 5
6252.19	Ord. C-4059, 1960	Title 5
6252.21	Ord. C-4059, 1960	Title 5
6252.23	Ord. C-4059, 1960	Title 5
6252.25	Ord. C-4059, 1960	Title 5
6252.27	Ord. C-4059, 1960	Title 5
6252.29	Ord. C-4059, 1960	Title 5
6252.31	Ord. C-4059, 1960	Title 5
6252.33	Ord. C-4059, 1960	Title 5
6252.35	Ord. C-4059, 1960	Title 5
6252.37	Ord. C-4059, 1960	Title 5
6253		Title 5
6253.1		Title 5
6253.2		Title 5
6253.3		Title 5
6253.4		Title 5
6253.5		Title 5
6253.6		Title 5
6253.7		Title 5
6254		Title 5
6254.1		Title 5
6254.2		Title 5
6254.3		Title 5
6254.4		Title 5
6254.5		Title 5
6254.6		Title 5
6254.7		Title 5
6254.8		Title 5
6254.9		Title 5
6254.10		Title 5
6254.11		Title 5
6254.12		Title 5
6254.13		Title 5
6254.14		Title 5
6254.15	Ord. C-5215, 1975	Title 5
6255	Ord. C-5215, 1975	Title 5
6255.1	Ord. C-5215, 1975	Title 5

Prior code §	Ordinance History	Herein
6255.2		Title 5
6255.3	Ord. C-5215, 1975	Title 5
6255.3.1	Ord. C-5215, 1975	Title 5
6255.4		Title 5
6255.5	Ord. C-5215, 1975	Title 5
6255.6		Title 5
6255.6.1	Ord. C-5215, 1975	Title 5
6255.7	Ord. C-5215, 1975	Title 5
6255.8	Ord. C-5215, 1975	Title 5
6255.8.1	Ord. C-5215, 1975	Title 5
6255.8.2	Ord. C-5215, 1975	Title 5
6255.9		Title 5
6255.10		Title 5
6255.11		Title 5
6255.12	Ord. C-5215, 1975	Title 5
6255.13		Title 5
6255.14		Title 5
6255.14.1	Ord. C-5215, 1975	Title 5
6255.15	Ord. C-5215, 1975	Title 5
6255.16	Ord. C-5215, 1975	Title 5
6256.		Title 5
6256.1		Title 5
6256.2	Ord. C-4586, 1966	Title 5
6256.3	Ord. C-5120, 1974	Title 5
6256.4		Title 5
6257		Title 5
6257.1		Title 5
6257.2		Title 5
6257.3		Title 5
6257.4		Title 5
6257.5		Title 5
6257.6		Title 5
6257.7		Title 5
6257.8		Title 5
6270	Ord. C-5061, 1973	Title 5
6270.1		Title 5
6270.2	Ord. C-5061, 1973	Title 5
6270.3		Title 5

Prior code §	Ordinance History	Herein
6270.4		Repealed by C-5061
6270.5		Repealed by C-5061
6272		Title 5
6272.1		Title 5
6272.2		Title 5
6272.3		Title 5
6272.4		Title 5
6272.5		Repealed by C-4101
6272.6	Ord. C-410l, 1960	Title 5
6273		Title 5
6273.1		Title 5
6273.2		Title 5
6273.3		Title 5
6273.4		Title 5
6273.5		Title 5
6273.6		Title 5
6273.7		Title 5
6273.8		Title 5
6273.9		Title 5
6273.10		Title 5
6273.11	Ord. C-3881, 1958	Title 5
6273.12		Title 5
6273.13		Title 5
6273.14		Title 5
6273.15		Title 5
6273.16		Title 5
6273.17		Title 5
6273.18		Title 5
6273.19		Title 5
6274		Title 5
6274.1		Title 5
6274.2		Title 5
6274.3		Title 5
6274.4		Title 5
6274.5		Title 5
6274.6		Title 5

Prior code §	Ordinance History	Herein
6274.7		Title 5
6274.8		Title 5
6274.9		Title 5
6274.10		Title 5
6274.11		Title 5
6274.12		Title 5
6274.13		Title 5
6274.14		Title 5
6274.15		Title 5
6274.16		Title 5
6275		Title 5
6275.1		Title 5
6275.2		Title 5
6275.3		Title 5
6275.4		Title 5
6275.5		Title 5
6275.6		Title 5
6275.7		Title 5
6277	Ord. C-3634, 1956	Title 5
6277.1	Ord. C-3634, 1956	Title 5
6278	Ord. C-3634, 1956	Title 5
6278.1	Ord. C-3634, 1956	Title 5
6279	Ord. C-3643, 1956	Title 5
6279.1	Ord. C-3643, 1956	Title 5
6279.2	Ord. C-3643, 1956	Title 5
6279.3		Title 5
6280		Title 5
6280.1		Title 5
6280.2		Title 5
6280.3		Title 5
6280.4		Title 5
6281		Title 5
6281.1		Title 5
6281.2		Title 5
6281.3		Title 5
6290		Title 5
6290.1		Title 5
6290.2		Title 5

Prior code §	Ordinance History	Herein
6290.3		Title 5
6290.4		Title 5
6290.5		Title 5
6290.6		Title 5
6290.7		Title 5
6290.8		Title 5
6290.9		Title 5
6290.10		Title 5
6290.11		Title 5
7110	Ord. C-3860, 1958	2.87.020
7110.1	Ord. C-3860, 1958	2.87.040
7110.2	Ord. C-3860, 1958	2.87.030
7110.3		2.87.050
7110.4	Ord. C-3860, 1958	2.87.060
7110.5		2.87.010
7110.6		2.87.010
7110.7		2.87.010
7110.8		2.87.070
7110.9		2.87.080
7120		2.87.090
7120.1		2.87.100
7120.2		2.87.110
7120.3	Ord. C-4397, 1963	2.87.130
7120.4		2.87.120
7120.5		2.87.140
7210	Ord. C-4159, 1961	16.04.010
7210.1		16.04.020
7210.2		16.04.030
7210.3		16.04.040
7210.4		16.04.050
7210.5		16.04.060
7220		16.08.010—16.08.290
7221		16.08.300
7221.1		16.08.310
7221.2		16.08.320
7221.3		16.08.330
7221.4		16.08.340
7222		16.08.350

Prior code §	Ordinance History	Herein
7222.1		16.08.360
7222.2		16.08.370
7222.3		16.08.380
7222.4		16.08.390
7222.5		16.08.400
7222.6		16.08.410
7222.7		16.08.420
7222.8		16.08.430
7222.9		16.08.440
7222.10		16.08.450
7222.11		16.08.460
7222.12		16.08.470
7222.13		16.08.480
7222.14		16.08.490
7222.15		16.08.500
7222.16		16.08.510
7222.17		16.08.520
7222.18		16.08.530
7222.19		16.08.540
7222.20		16.08.550
7222.21		16.08.560
7222.22		16.08.570
7222.23		16.08.580
7222.24		16.08.590
7222.25		16.08.600
7222.26		16.08.610
7222.27		16.08.620
7222.28		16.08.630
7222.29		16.08.640
7223		16.08.650
7223.1		16.08.660
7223.2		16.08.670
7223.3		Repealed by C-6250
7223.4		16.08.690
7223.5		16.08.700
7223.6		16.08.710
7223.7		16.08.720
7223.8		16.08.730

Prior code §	Ordinance History	Herein
7224		16.08.740
7224.1		16.08.750
7224.2		16.08.760
7224.3		16.08.770
7224.4		16.08.780
7224.5		16.08.790
7224.6		16.08.800
7225		16.08.810
7225.1		16.08.820
7225.2		16.08.830
7225.3		16.08.840
7226		16.08.850
7226.1		16.08.860
7226.2		16.08.870
7226.3		16.08.880
7226.4		16.08.890
7227		16.08.900
7227.1		16.08.910
7227.2		16.08.920
7227.3		16.08.930
7227.4		16.08.940
7227.5		16.08.950
7227.6		16.08.960
7228		16.08.970
7228.1		16.08.980
7228.2		16.08.990
7230	Ord. C-5183, 1975	16.12.010—16.12.110
7231		16.12.120
7231.1		16.12.130
7231.2		16.12.140
7231.3		16.12.150
7231.4		16.12.160
7231.5		16.12.170
7231.6		16.12.180
7231.7		16.12.190
7231.8		16.12.200
7231.9		16.12.210
7231.10		16.12.220

Prior code §	Ordinance History	Herein
7231.11		16.12.230
7231.12		16.12.240
7231.13		16.12.250
7231.14		16.12.260
7232		16.12.270
7232.1		16.12.280
7233		16.12.290
7233.1		16.16.300
7300		16.16.010
7300.1	Ord. C-4477, 1964; Ord. C-3846, 1958	16.16.020
7300.2		16.16.030
7300.3		16.16.040
7300.4		16.16.050, 9.20.050
7300.5		16.16.060
7300.6		16.16.070
7310		10.30.010
7310.1		10.30.020
7310.2		10.30.030
7310.3		10.30.040
7310.4		10.30.050
7310.5		10.30.060
7310.6		10.30.070
7310.7		10.30.080
7310.8		10.30.090
7310.9		10.30.100
7310.10		10.30.110
7310.11		10.30.120
7310.13		Repealed by C-5712
7310.14		Repealed by C-5625
7310.15		Repealed by C-5625
7320		16.20.010
7320.1		16.20.020
7320.2		16.20.030
7320.3		16.20.040
7410	Ord. C-4674, 1967; Ord. C-4234 1962	16.32.010
7410.1	Ord. C-4234, 1962	16.32.020

Prior code §	Ordinance History	Herein
7410.2	Ord. C-4674, 1967	16.32.030
7410.3	Ord. C-4234, 1962	16.32.040
7410.4	Ord. C-4234, 1962	16.32.050
7410.5	Ord. C-4234, 1962	16.32.060
7420	Ord. C-4446, 1964	16.44.010
7420.1		16.44.020
7420.2		16.44.030
7420.3		16.44.040
7420.4	Ord. C-4039, 1960	16.44.050
7420.5	Ord. C-4039, 1960	16.44.070
7420.6		16.44.080
7420.7	Ord. C-5121, 1974; Ord. C-4925, 1971; Ord. C-4227, 1962; Ord. C-4195, 1961	16.44.090
7420.8	Ord. C-3781, 1957	Repealed by C-5407
7420.9		Repealed by C-5407
7420.10	Ord. C-4039, 1960	16.44.100
7420.11	Ord. C-4156, 1961	16.44.110
7420.12	Ord. C-4156, 1961	16.44.120
7420.13	Ord. C-4446, 1964	16.44.130
7420.14	Ord. C-4260, 1962	16.44.140
7420.85		16.44.060
7421—7421.20		Repealed by C-6278
7422—7422.11		Repealed by C-6278
7430		3.72.010
7440		16.48.010
7440.1	Ord. C-5142, 1974	16.48.020
7440.2	Ord. C-5142, 1974	16.48.030
7440.3		Repealed by C-5142
7440.4		16.48.040
7440.5	Ord. C-5142, 1974	16.48.050
7440.6	Ord. C-5142, 1974	16.48.060
7440.7	Ord. C-5142, 1974	16.48.070
7440.8	Ord. C-4236, 1962	16.48.080
7450	Ord. C-4550, 1964	16.40.010
7450.1		16.40.020

Prior code §	Ordinance History	Herein
7450.2		16.40.030
7450.3	Ord. C-4230, 1962	16.40.040
7450.4		16.40.050
7450.5		16.40.060
7450.6		16.40.070
7450.7		16.40.080
7450.8		16.40.090
7450.9		16.40.100
7450.10		16.40.110
7450.11		16.40.120
7450.12		16.40.130
7450.13.		16.40.140
7450.14		16.40.150
7450.15		16.40.160
7450.16		16.40.170
7450.17		16.40.180
7450.18		16.40.190
7450.19		16.40.200
7450.20		16.40.210
7450.21		16.40.220
7450.22		16.40.230
7450.23		16.40.240
7450.24		16.40.250
7461(a)		15.36.010—15.36.090
7461(b)	Ord. C-494l, 1971	15.36.100
7461(c)		15.36.120
7461.1	Ord. C-3874, 1958	15.40.010
7461.2	Ord. C-4323, 1963	15.40.020
7461.3	Ord. C-3874, 1958	15.40.030
7461.4	Ord. C-5027, 1972	15.40.040
7461.5	Ord. C-3660, 1956	15.40.050
7461.6	Ord. C-3874, 1958	15.40.060
7461.7	Ord. C-3874, 1958	15.40.070
7461.8	Ord. C-4323, 1963	15.40.080
7461.9	Ord. C-4018, 1960	15.40.090
7461.10	Ord. C-4018, 1960	15.40.100
7461.11		15.40.110
7461.12		15.40.120

Prior code §	Ordinance History	Herein
7461.13		15.40.130
7461.14	Ord. C-4018, 1960; Ord. C-3934, 1959	15.40.140
7461.15	Ord. C-3934, 1959; Ord. C-3660, 1956	15.40.150
7461.16		15.40.160
7461.17		15.40.170
7461.18		15.40.180
7461.19		15.40.190
7461.20		15.40.200
7461.21		15.40.210
7461.22		15.40.220
7461.23		15.40.230
7461.24		15.40.240
7470	Ord. C-3836, 1958	16.36.010
7471	Ord. C-3836, 1958	16.36.020
7472	Ord. C-3836, 1958	16.36.030
7473	Ord. C-3836, 1958	16.36.040
7474	Ord. C-3836, 1958	16.36.050
7480	Ord. C-4300, 1962; Ord. C-3612, 1956	16.28.010
7480.1	Ord. C-5194, 1975; Ord. C-3612, 1956	16.28.020
7480.2	Ord. C-3612, 1956	16.28.030
7480.3	Ord. C-5060, 1973; Ord. C-3612, 1956	16.28.040
7480.4	Ord. C-5060, 1973; Ord. C-3612, 1956	16.28.050
7480.5	Ord. C-4300, 1962; Ord. C-3612, 1956	Repealed by C-5134
7480.6	Ord. C-5059, 1973	16.28.060
7480.7	Ord. C-5059, 1973	16.28.070
7480.8	Ord. C-5059, 1973	16.28.080
7480.9		16.28.090
7490.5	Ord. C-3886, 1958	16.24.010
7490.10	Ord. C-5100, 1973	16.24.020
7490.15	Ord. C-5100, 1973	16.24.030
7490.20	Ord. C-3886, 1958	16.24.040
7490.25	Ord. C-5100, 1973	16.24.050
7490.30	Ord. C-3886, 1958	16.24.060
7490.35	Ord. C-5100, 1973	16.24.070
7490.40	Ord. C-5100, 1973	16.24.080
7490.45	Ord. C-5100, 1973; Ord. C-3886, 1958	16.24.090
7495	Ord. C-5058, 1973	2.81.020
7495.1	Ord. C-5058, 1973	2.81.010

Prior code §	Ordinance History	Herein
7495.2	Ord. C-5058, 1973	2.81.030
7495.3	Ord. C-5058, 1973	2.81.050
7495.4	Ord. C-5058, 1973	2.81.040
7495.5	Ord. C-5058, 1973	2.81.060
7496—7496.5		9.38.010—9.38.060
7510	Ord. C-4102, 1960	14.28.010
7510.1	Ord. C-4102, 1960	14.28.020
7510.2	Ord. C-4102, 1960	14.28.030
7510.3	Ord. C-4102, 1960	14.28.040
7510.4	Ord. C-4102, 1960	14.28.050
7510.5	Ord. C-4102, 1960	14.28.060
7510.6	Ord. C-4102, 1960	14.28.070
7510.7	Ord. C-4102, 1960	14.28.080
7510.8	Ord. C-4102, 1960	14.28.090
7510.9	Ord. C-4102, 1960	14.28.100
7510.10	Ord. C-4102, 1960	14.28.110
7510.11	Ord. C-4102, 1960	14.28.120
7510.12	Ord. C-5110, 1960	16.16.080
7531	Ord. C-5123, 1974	14.16.010
7531.1	Ord. C-4712, 1968	14.16.020
7531.2	Ord. C-5123, 1974	14.16.030
7531.3	Ord. C-5123, 1974	14.16.040
7531.4	Ord. C-5123, 1974	14.16.050
7531.5	Ord. C-4712, 1968	14.16.060
7531.6	Ord. C-5123, 1974	14.16.070
7531.7	Ord. C-5123, 1974	14.16.080
7531.8—7531.10		Repealed by C-5123
7531.11		Repealed by C-4104
7532		14.04.040—14.04.050
7532.1	Ord. C-5126, 1974; Ord. C-5122, 1974	Repealed by C-7929
7533		Not codified
7534		Not codified
7534.1		Not codified
7534.2		Not codified
7534.3		14.24.010

Prior code §	Ordinance History	Herein
7534.4		14.24.020
7534.5		14.24.030
7534.6		14.24.040
7534.7		14.24.050
7534.8		14.24.060
7534.9		14.24.070
7534.10		14.24.080
7534.11		14.24.090
7534.12		14.24.100
7550		14.12.010
7550.1		14.12.020
7550.2		14.12.030
7550.3		14.12.040
7550.4		14.12.050
7550.5		14.12.060
7550.6		14.12.070
7560	Ord. C-4715, 1968; Ord. C-4697, 1967	15.44.010
7560.1	Ord. C-4697, 1967	15.44.020
7560.2	Ord. C-4697, 1967	15.44.030
7560.3		15.44.040
7560.4	Ord. C-3705, 1967	15.44.050
7560.5	Ord. C-4697, 1967	15.44.060
7560.6	Ord. C-4697, 1967	15.44.070
7560.7		15.44.080
7560.8	Ord. C-3705, 1967	15.44.090
7560.9	Ord. C-4697, 1967	15.44.100
7560.10		15.44.110
7560.11	Ord. C-4697, 1967	15.44.120
7560.12	Ord. C-4697, 1967	15.44.130
7560.13	Ord. C-4697, 1967	15.44.140
7560.14	Ord. C-4697, 1967	15.44.150
7560.15	Ord. C-4697, 1967	15.44.160
7560.16		15.44.170
7560.17		15.44.180
7560.18	Ord. C-4697, 1967	15.44.190
7560.19	Ord. C-4697, 1967	15.44.200
7560.20	Ord. C-4697, 1967	15.44.210
7560.21	Ord. C-3705, 1967	15.44.220

Prior code §	Ordinance History	Herein
7560.22	Ord. C-3705, 1967	15.44.230
7560.23	Ord. C-4697, 1967	15.44.240
7561		Chapter 12.56
7561.1		Chapter 12.56
7561.2		Chapter 12.56
7561.3		Chapter 12.56
7570	Ord. C-3858	15.04.010—15.04.340
7570.1		15.20.010
7570.2		15.08.010
7570.3		15.08.020
7570.4		Repealed by C-7173
7570.5		15.08.040
7570.6	Ord. C-4183, 1961	Repealed by C-7173
7570.7		Repealed by C-7173
7570.8		15.08.070
7570.9		15.16.010
7570.10		15.16.020
7570.11		Repealed by C-7173
7570.12		15.16.040
7570.13		Repealed by C-7173
7570.14		Repealed by C-7173
7570.15		15.16.070
7570.16		15.16.080
7570.17		Repealed by C-7173
7570.18		Repealed by C-7173
7570.19		Repealed by C-7173
7570.20		Repealed by C-7173
7570.21		Repealed by C-7173

Prior code §	Ordinance History	Herein
7570.22		Repealed by C-7173
7570.23		Repealed by C-7173
7570.24		15.08.080
7570.25		15.08.090
7570.26		Repealed by C-7173
7570.27		Repealed by C-7173
7570.28		Repealed by C-7173
7570.29		Repealed by C-7173
7570.30		Repealed by C-7173
7570.31		Repealed by C-7173
7570.32	Ord. C-4534, 1965	Repealed by C-7173
7570.33		Repealed by C-7173
7570.34		Repealed by C-7173
7570.35		Repealed by C-7173
7570.36		Repealed by C-7173
7570.37		15.08.120
7570.38		Repealed by C-7173
7570.39		15.28.010
7570.40		Repealed by C-7173
7570.41		Repealed by C-7173
7570.42		Repealed by C-7173
7570.43		Repealed by C-7173
7570.44		Repealed by C-7173

Prior code §	Ordinance History	Herein
7510.45		Repealed by C-7173
7510.46		Repealed by C-7173
7510.47		Repealed by C-7173
7510.48		Repealed by C-7173
7510.49		Repealed by C-7173
7510.50		Repealed by C-7173
7510.51		Repealed by C-7173
7570.52		15.20.050
7570.53		15.20.060
7570.54		15.20.070
7570.55		15.20.080
7570.56		15.20.090
7570.57		15.20.100
7570.58		15.20.110
7570.59		Repealed by C-7173
7570.60		15.20.130
7570.61		15.20.140
7570.62		Repealed by C-7173
7570.63		Repealed by C-7173
7570.64		Repealed by C-7173
7570.65		Repealed by C-7173
7570.66		15.20.150
7570.67		15.20.160
7570.68		15.20.170
7570.69		15.20.180
7570.70		Repealed by C-7173
7570.71		15.20.200
7570.72		15.24.010

Prior code §	Ordinance History	Herein
7570.73		Repealed by C-7173
7570.74		Repealed by C-7173
7570.75		Repealed by C-7173
7570.76		Repealed by C-7173
7570.77		Repealed by C-7173
7570.78		Repealed by C-7173
7570.79		Repealed by C-7173
7570.80		15.24.090
7570.81		15.24.100
7570.82		Repealed by C-7173
7570.83		15.24.120
7570.84		15.24.130
7570.85		Repealed by C-7173
7570.86		15.24.150
7570.87		15.24.160
7570.88		15.24.170
7570.89		15.24.180
7570.90		15.24.190
7570.91		15.24.200
7570.92		15.24.210
7570.93		15.24.220
7570.94		15.24.230
7570.95		15.24.240
7570.96		15.24.250
7570.97		15.24.260
7570.98		15.24.270
7570.99		15.24.280
7570.100		15.24.290
7570.101	Ord. C-3804	15.24.300
7580	Ord. C-4524, 1965	Chapter 14.08
7580.1	Ord. C-4524, 1965	Chapter 14.08

Prior code §	Ordinance History	Herein
7580.2	Ord. C-4524, 1965	Chapter 14.08
7580.3	Ord. C-4524, 1965	Chapter 14.08
7580.4	Ord. C-4524, 1965	Chapter 14.08
7580.5	Ord. C-4524, 1965	Chapter 14.08
7580.6	Ord. C-4524, 1965	Chapter 14.08
7580.7	Ord. C-4524, 1965	Chapter 14.08
7580.8	Ord. C-4524, 1965	Chapter 14.08
7580.9	Ord. C-4524, 1965	Chapter 14.08
7580.10	Ord. C-4524, 1965	Repealed by C-5701
7580.11	Ord. C-4524, 1965	Chapter 14.08
7580.12	Ord. C-4524, 1965	Chapter 14.08
7580.13	Ord. C-4524, 1965	Chapter 14.08
7580.14	Ord. C-4524, 1965	Chapter 14.08
7580.15	Ord. C-4524, 1965	Chapter 14.08
7580.16	Ord. C-4524, 1965	Chapter 14.08
7580.17	Ord. C-4524, 1965	Chapter 14.08
7580.18	Ord. C-4524, 1965	Chapter 14.08
7580.19	Ord. C-4524, 1965	Chapter 14.08
7580.20	Ord. C-4524, 1965	Chapter 14.08
7580.21	Ord. C-4524, 1965	Chapter 14.08
7580.22	Ord. C-4524, 1965	Chapter 14.08
7580.23	Ord. C-4524, 1965	Chapter 14.08
7580.24	Ord. C-4524, 1965	Chapter 14.08
7580.25	Ord. C-4524, 1965	Chapter 14.08
7580.26	Ord. C-4524, 1965	Chapter 14.08
7580.27	Ord. C-4524, 1965	Chapter 14.08
7580.28	Ord. C-4524, 1965	Chapter 14.08
7580.29	Ord. C-4524, 1965	Chapter 14.08
7580.30	Ord. C-4524, 1965	Chapter 14.08
7580.31	Ord. C-4524, 1965	Chapter 14.08
7580.32	Ord. C-4524, 1965	Chapter 14.08
7580.33	Ord. C-4524, 1965	Chapter 14.08
7580.34	Ord. C-4524, 1965	Chapter 14.08
7580.35	Ord. C-4524, 1965	Chapter 14.08
7580.36	Ord. C-4524, 1965	Chapter 14.08
7580.37	Ord. C-4524, 1965	Chapter 14.08
7580.38	Ord. C-4524, 1965	Chapter 14.08
7580.39	Ord. C-4524, 1965	Chapter 14.08

Prior code §	Ordinance History	Herein
7580.40	Ord. C-4524, 1965	Chapter 14.08
7580.41	Ord. C-4524, 1965	Chapter 14.08
7580.42	Ord. C-4524, 1965	Chapter 14.08
7580.43	Ord. C-4524, 1965	Chapter 14.08
7580.44	Ord. C-4524, 1965	Chapter 14.08
7580.45	Ord. C-4524, 1965	Chapter 14.08
7580.46	Ord. C-4524, 1965	Chapter 14.08
7580.47	Ord. C-4524, 1965	Chapter 14.08
7580.48	Ord. C-4524, 1965	Chapter 14.08
7580.49	Ord. C-4524, 1965	Chapter 14.08
7610	Ord. C-4768, 1968	15.48.010
7620	Ord. C-4768, 1968	15.48.020
7621	Ord. C-4768, 1968	15.48.030
7622	Ord. C-4768, 1968	15.48.040
7623	Ord. C-4768, 1968	15.48.050
7624	Ord. C-4768, 1968	15.48.060
7625	Ord. C-4768, 1968	15.48.070
7626	Ord. C-4768, 1968	15.48.080
7627	Ord. C-4768, 1968	15.48.090
7628	Ord. C-4768, 1968	15.48.100
7629	Ord. C-4768, 1968	15.48.110
7630	Ord. C-4768, 1968	15.48.120
8100.101		Repealed by C-7823
8100.102		18.04.010
8100.103		18.04.020
8100.104		18.04.030—18.04.080
8100.105		18.04.090
8100.106		18.04.100
8100.107		18.04.110
8100.201		18.20.010
8100.202		18.20.020—18.20.070
8100.203		18.20.080
8100.204		18.20.090
8100.205		18.20.100
8100.206		18.20.110—18.20.160

Prior code §	Ordinance History	Herein
8100.207		18.20.170
8100.208		18.20.180—18.20.210
8100.209		18.20.220
8100.210		18.20.230
8100.211		18.20.240
8100.212		18.20.250
8100.213		18.20.260
8100.214		18.20.270
8100.215		18.20.280
8100.216		18.20.290
8100.217		18.20.300
8100.218		
8100.219		18.20.320
8100.220		18.20.330
8100.221		18.20.340
8100.222		18.20.350
8100.223		18.20.360
8100.224		18.20.370
8100.225		18.20.380
8100.301		18.12.010
8100.302		18.12.020
8100.303		18.12.030
8100.304		18.12.040
8100.305		18.12.050
8100.306		18.12.060—18.12.110
8100.307		18.12.120
8100.308		18.12.130—18.12.230
8100.309		18.12.240
8100.310		18.16.010—18.16.050
8100.311		18.16.060—18.16.140
8100.312		18.16.150—18.16.200
8100.401		18.08.010
8100.402		18.08.020

Prior code §	Ordinance History	Herein
8100.403		Repealed by C-7004
8100.404		Repealed by C-7004
8100.405		18.08.050
8100.406		18.08.060
8100.407		18.08.070
8100.408		Repealed by C-7004
8100.409		Repealed by C-7004
8100.410		18.08.100
8100.411		18.08.110
8100.412		18.08.120
8100.413		Repealed by C-7004
8100.414		18.08.140
8100.415		18.08.150
8100.416		18.08.160
8100.417		18.08.170
8100.418		18.08.180
8100.419		Repealed by C-7004
8100.420		18.08.200
8100.421		18.08.210
8100.422		18.08.220
8100.423		18.08.230
8100.424		Repealed by C-7004
8100.425		18.08.250
8100.426		Repealed by C-7004
8100.427		18.08.270
8100.8000		Chapter 18.68
8100.8001		Chapter 18.68
8100.8002		Chapter 18.68
8100.8003		Chapter 18.68
8100.8004		Chapter 18.68
8100.8005		Chapter 18.68
8100.8006		Chapter 18.68

Prior code §	Ordinance History	Herein
8100.8007		Chapter 18.68
8100.8008		Chapter 18.68
8100.8009		Chapter 18.68
8100.8010		Chapter 18.68
8100.8011		Chapter 18.68
8100.8012		Chapter 18.68
8100.8013		Chapter 18.68
8100.8014		Chapter 18.68
8120.100		18.40.010—18.40.020
8120.101		18.44.010
8120.102		18.44.020
8120.103		18.44.030
8120.104		18.44.040
8120.105		18.44.050
8120.106		18.44.060
8120.107		18.44.070
8120.108		18.44.080
8120.109		18.44.230
8120.110		18.44.240
8120.111		18.44.250
8120.112		18.44.350
8120.113		18.44.360
8120.114		18.44.370
8120.115		18.44.380
8120.116		18.44.390
8120.117		18.44.090
8120.118		18.44.400
8120.119		18.44.410
8120.120		18.44.260
8120.121		18.44.270
8120.122		18.44.280
8120.123		18.44.290
8120.124		18.44.300
8120.125		18.44.310
8120.126		Repealed by C-6015
8120.128		18.44.330
8120.129		18.44.340

Prior code §	Ordinance History	Herein
8120.130		18.44.420
8120.131		18.44.430
8120.132		18.44.220
8120.133		Repealed by C-7549
8120.134		Repealed by C-7549
8120.135		Repealed by C-7549
8120.136		Repealed by C-7549
8120.137		Repealed by C-7549
8120.138		Repealed by C-7549
8120.139		Repealed by C-7549
8120.140		Repealed by C-7549
8120.141		Repealed by C-7549
8120.142		Repealed by C-7549
8120.143		18.44.200
8120.144		18.44.440
8120.145		18.44.450
8120.146		18.44.460
8120.147		18.44.470
8120.148		18.44.480
8120.149		18.44.210
8130.100		18.28.010
8130.101		18.32.010
8130.102		18.32.020
8130.103		Repealed by C-5495
8130.104		Repealed by C-5495
8130.105		18.32.200
8130.106		18.32.210
8130.107		18.32.220
8130.108		18.32.230

Prior code §	Ordinance History	Herein
8130.109		18.32.060
8130.110		18.32.070
8130.111		Repealed by C-7549
8130.112		18.32.090
8130.113		18.32.100
8130.114		18.32.110
8130.115		18.32.120
8130.116		18.32.130
8130.117		18.32.140
8130.118		18.32.150
8130.119		18.32.160
8130.120		18.32.170
8130.121		18.32.180
8130.122		18.32.190
8130.123		18.32.040
8130.124		18.32.050
8130.200		18.32.240
8130.201		18.32.250
8130.202		18.32.260
8130.203		18.32.270
8130.204		Repealed by C-5412
8130.205		Repealed by C-7549
8130.206		18.32.290
8130.207		Repealed by C-6015
8130.208		Repealed by 07-0062
8130.209		18.32.320
8130.210		18.32.330
8130.211		18.32.340
8130.212		18.32.350
8130.213		18.32.360
8130.214		Repealed by C-7549
8130.215		Repealed by C-7549

Prior code §	Ordinance History	Herein
8130.216		Repealed by C-7549
8130.217		Repealed by C-7549
8130.218		Repealed by C-7549
8130.219		Repealed by C-7549
8130.300		18.32.030
8140		Repealed by 07-0062
8140.1		Repealed by 07-0062
8140.2		Repealed by 07-0062
8140.3		Repealed by 07-0062
8140.4		Repealed by 07-0062
8140.5		Repealed by 07-0062
8140.6		Repealed by 07-0062
8140.7		Repealed by 07-0062
8140.8		Repealed by 07-0062
8140.9		Repealed by 07-0062
8140.10		Repealed by 07-0062
8140.11		Repealed by 07-0062
8140.12		Repealed by 07-0062
8140.13		Repealed by 07-0062
8140.14		Repealed by 07-0062
8140.15		Repealed by 07-0062
8140.16		Repealed by 07-0062

Prior code §	Ordinance History	Herein
8140.17		Repealed by 07-0062
8140.18		Repealed by 07-0062
8140.19		Repealed by 07-0062
8140.20		Repealed by 07-0062
8140.21		Repealed by 07-0062
8140.22		Repealed by 07-0062
8140.23		Repealed by C-3816
8140.24		Repealed by 07-0062
8140.25		Repealed by 07-0062
8140.26		Repealed by 07-0062
8140.27		Repealed by 07-0062
8140.28		Repealed by 07-0062
8140.29		Repealed by 07-0062
8140.30		Repealed by 07-0062
8140.31		Repealed by 07-0062
8140.32		Repealed by 07-0062
8140.33		Repealed by 07-0062
8140.34		Repealed by 07-0062
8140.35		Repealed by 07-0062
8140.36		Repealed by 07-0062
8140.37		Repealed by 07-0062

Prior code §	Ordinance History	Herein
8140.38		Repealed by 07-0062
8140.39		Repealed by 07-0062
8140.40		Repealed by 07-0062
8140.41		Repealed by 07-0062
8140.42		Repealed by 07-0062
8140.43		Repealed by 07-0062
8140.44		Repealed by 07-0062
8140.45		Repealed by 07-0062
8140.46		Repealed by 07-0062
8140.47		Repealed by 07-0062
8140.48		Repealed by 07-0062
8140.49		Repealed by 07-0062
8140.50		Repealed by 07-0062
8140.51		Repealed by C-6680
8140.51.1		Repealed by C-6680
8140.51.2		Repealed by C-6680
8140.51.3		Repealed by C-6680
8160.101		18.64.010
8160.102		18.64.020
8160.103		18.64.030
8160.104		18.64.040
8160.105		18.64.050
8160.106		18.64.060
8160.107		18.64.070
8160.108		18.64.080

Prior code §	Ordinance History	Herein
8160.109		18.64.090
8170.100		18.36.010—18.36.030
8170.101		18.36.060
8170.102		18.36.070
8170.103		18.36.080
8170.104		Repealed by 07-0062
8170.105		18.36.110—18.36.160
8170.106		18.36.100
8170.107		18.36.170
8170.108		18.36.180
8170.109		18.36.190
8170.110		18.36.200
8170.111(a)		18.36.210
8170.111(b)		18.36.220
8170.111(c)		18.36.230
8170.111(d)		Repealed by C-6015
8170.112		18.36.250
8170.113		18.36.260
8170.114		18.36.270
8170.115		18.36.280
8170.116		18.36.290
8200		14.32.010
8200.1		14.32.020
8200.2		14.32.030
8200.3		14.32.040
8200.4		14.32.050
8200.5	Ord. C-4237, 1962	14.32.060
8200.6	Ord. C-4870, 1970	14.32.070
8300	Ord. C-4380, 1963	18.52.010
8300.1	Ord. C-4380, 1963	18.52.020
8300.2	Ord. C-4380, 1963	18.52.030
8300.3	Ord. C-4380, 1963	18.52.040
8300.4	Ord. C-4531, 1965; Ord. C-4380, 1963	18.52.050
8300.5	Ord. C-4380, 1963	18.52.060
8300.6	Ord. C-4531, 1965	18.52.070

Prior code §	Ordinance History	Herein
8300.7	Ord. C-4380, 1963	18.52.080
8300.8	Ord. C-4531, 1965	18.52.090
8300.9	Ord. C-4380, 1963	18.52.100
8300.10	Ord. C-4380, 1963	18.52.110
8300.11	Ord. C-4380, 1963	18.52.120
8300.12	Ord. C-4380, 1963	18.52.130—18.52.180
8300.13	Ord. C-4380, 1963	18.52.190
8300.14	Ord. C-4380, 1963	18.52.200
8300.15	Ord. C-4380, 1963	Repealed by C-6015
8300.16	Ord. C-4380, 1963	18.52.220
8300.17	Ord. C-4380, 1963	18.52.230
8300.18—8300.42		Repealed by C-4380
8400	Ord. C-5057, 1973	Not codified
9110.1(a)		20.04.010
9110.1(b)		20.04.020
9110.1(c)		20.04.030
9110.1(d)		20.04.040
9110.1(e)		20.04.050
9110.1(f)1		20.04.060
9110.1(f)2		20.04.070
9110.1(g)		20.04.080
9110.1(h)(part)		20.04.090
9110.1(h)1		20.04.100
9110.1(h)2		20.04.110
9110.1(h)3		20.04.120
9110.1(h)4		20.04.130
9110.1(i)1		20.04.140
9110.1(i)2		20.04.150
9110.1(j)1		20.04.160
9110.1(j)2		20.04.170
9110.1(j)3		20.04.190
9110.1(k)		20.04.180
9110.10(part)		20.08.010—20.08.250
9110.2(a)		20.12.010
9110.2(b)1		20.12.020

Prior code §	Ordinance History	Herein
9110.2(b)2		20.12.030
9110.2(c)1		20.12.040
9110.2(c)2		20.12.050
9110.2(c)3		20.12.060
9110.2(c)4		20.12.070
9110.2(c)5		20.12.080
9110.2(d)(part)		20.12.090
9110.2(d)1		20.12.100
9110.2(d)2		20.12.110
9110.2(d)3		20.12.120
9110.2(d)4		20.12.130
9110.2(d)5		20.12.140
9110.2(d)6		20.12.150
9110.2(e)		20.12.160
9110.2(f)		20.12.170
9110.2(g)1		20.12.180
9110.2(g)2		20.12.190
9110.2(h)1		20.12.200
9110.2(h)2		20.12.210
9110.3(a)		20.16.010
9110.3(b)1		20.16.020
9110.3(b)2		20.16.030
9110.3(c)1		20.16.040
9110.3(c)2		20.16.050
9110.3(c)3		20.16.060
9110.3(c)4A		20.16.070
9110.3(c)4B		20.16.080
9110.3(c)5		20.16.090
9110.4(a)		20.20.010
9110.4(b)1		20.20.020
9110.4(b)2		20.20.030
9110.4(b)3		20.20.040
9110.4(c)		20.20.050
9110.4(d)		20.20.060
9110.4(e)		20.20.070
9110.5(a)		20.24.010
9110.5(b)1		20.24.020
9110.5(b)2		20.24.030

Prior code §	Ordinance History	Herein
9110.5(b)3		20.24.040
9110.5(c)1A		20.24.050
9110.5(c)1B		20.24.060
9110.5(c)1C		20.24.070
9110.5(c)1D		20.24.080
9110.5(c)2		20.24.090
9110.6(a)		20.28.010
9110.6(b)1		20.28.020
9110.6(b)2		20.28.030
9110.6(c)1		20.28.040
9110.6(c)2		20.28.050
9110.6(c)3		20.28.060
9110.6(c)4		20.28.070
9110.6(c)5		20.28.080
9110.7(a)		20.32.010—20.32.020
9110.7(b)		20.32.030—20.32.190
9110.7(c)		20.32.200—20.32.260
9110.7(d)		20.32.270—20.32.360
9110.7(e)		20.32.370—20.32.500
9110.7(f)		20.32.510
9110.7(g)		20.32.520
9110.8(a)		20.36.010
9110.8(b)		20.36.020
9110.8(c)1		20.36.030
9110.8(c)2		20.36.040
9110.8(d)		20.36.050
9110.8(e)		20.36.060
9110.8(f)1		20.36.070
9110.8(f)2		20.36.080
9110.8(f)3		20.36.090
9110.8(f)4		20.36.100
9110.8(f)5		20.36.110
9110.8(g)		20.36.120
9110.8(h)		20.36.130

Prior code §	Ordinance History	Herein
9110.8(i)		20.36.140
9110.8(j)		20.36.150
9110.9(a)		20.40.010
9110.9(b)		20.40.020
9110.9(c)		20.40.030
9110.9(d)1		20.40.040
9110.9(d)2		20.40.050
9110.9(c)		20.40.060
9110.9(f)1		20.40.070
9110.9(f)2		20.40.080
9110.9(f)3		20.40.090
9110.9(g)		20.40.100
9120.1		Title 21
9120.2		Title 21
9120.3(a)		Title 21
9120.3(b)		Title 21
9120.3(c)		Title 21
9120.3(d)		Title 21
9120.3(e)		Title 21
9120.3(f)		2.03.050
9120.4(a)		Title 21
9120.4(b)		Title 21
9120.4(c)		Title 21
9120.4(d)		Title 21
9120.4(e)1		Title 21
9120.4(e)2		Title 21
9120.4(e)3		Title 21
9120.4(e)4		Title 21
9120.4(e)5		Repealed by C-6221
9120.4(e)6		Title 21
9120.4(e)7		Title 21
9120.4(f)		Title 21
9120.4(g)		Title 21
9120.4(h)		Title 21
9120.4(i)1		Title 21
9120.4(i)2		Title 21
9120.4(i)3(part)		Title 21
9120.4(i)3A(1)		Title 21

Prior code §	Ordinance History	Herein
9120.4(i)3A(2)		Title 21
9120.4(i)3A(3)		Title 21
9120.4(i)3A(4)(part)		Title 21
9120.4(i)3A(4)(aa)		Title 21
9120.4(i)3A(4)(bb)		Repealed by C-5903
9120.4(i)3A(4)(cc)		Repealed by C-5903
9120.4(i)3A(4)(dd)		Repealed by C-5903
9120.4(i)3A(4)(ee)		Title 21
9120.4(i)3B		Title 21
9120.4(i)4		Title 21
9120.4(j)		Title 21
9120.4(k)		Title 21
9120.4(1)		Title 21
9120.5		Title 2l
9120.6(a)		Title 21
9120.6(b)(part)		Title 21
9120.6(b)1		Title 21
9120.6(b)2		Repealed by C-6192
9120.6(b)3		Title 21
9120.6(b)4		Title 21
9120.6(b)5		21.75.070
9120.7		Title 21
9120.8		Title 21
9120.9		Title 21
9120.10		Title 21
9120.11		Title 21
9120.12		Title 21
9120.13		Title 21
9120.14(a)		Title 21
9120.14(b)		Title 21
9120.14(c)1		Repealed by C-5903
9120.14(c)2		Repealed by C-5903
9120.14(d)1		Repealed by C-5838

Prior code §	Ordinance History	Herein
9120.14(d)2		Repealed by C-5838
9120.14(d)3		Repealed by C-5838
9120.14(d)4		Repealed by C-5838
9120.14(d)5		Repealed by C-5838
9120.15		Title 21
9120.16(a)		Title 21
9120.16(b)		Title 21
9120.16(c)(part)		Title 21
9120.16(c)1		Repealed by C-6220
9120.16(c)2		Repealed by C-6220
9120.16(c)3		Title 21
9120.16(c)4		Repealed by C-6220
9120.16(c)5		Title 21
9120.16(c)6		Title 21
9120.16(c)7		Title 21
9120.16(c)8		Title 21
9120.16(c)9		Title 21
9120.16(c)10		Title 21
9120.16(d)		Title 21
9120.17		Title 21
9120.18		Title 21
9200		Title 21
9200.1		Title 21
9200.2	Ord. C-4014, 1960	Title 21
9200.3	Ord. C-4014, 1960	Title 21
9200.4		Title 21
9200.5		Title 21
9200.6		Title 21
9200.7		Title 21
9200.8		Title 21
9200.9		Title 21
9210		Title 21
9300		2.90.010

Prior code §	Ordinance History	Herein
9301	Ord. C-5050, 1973	2.90.020

ORDINANCE LIST AND DISPOSITION TABLE

This table has been replaced with the Code Comparative Table and Disposition List.

Ordinance Number	Disposition
C-5225	Adds Div. 1.5 (4611.10—4611.27 on public nuisances) to prior code Art. IV Ch. 6, maintenance of property (8.76)
C-5226	Adds § 6256.4 to prior code, peddling near Queen's Way Landing (Title 5)
C-5227	Adds Ch.4-E and § 2490, 2490.1, 2490.2, 2490.7—2490.24 to Art. II of prior code, real property transfer tax (Repealed by C-5238)
C-5229	Amends § 2320.1, 2330.1 and 2340.1 of prior code, municipal arts commission (2.42, 2.48, 2.51)
C-5230	Adds § 6.100.224 to prior code, business licenses (Repealed by C-5399)
C-5232	Adds Part 8 and § 2780, 2780.1—2780.3 to Ch. 7 of prior code, rules for conduct of hearings (2.93)
C-5233	Adds § 3410.127 (463)—(465) and 3410.138 (24) to prior code, traffic control (10.08, 10.20)
C-5235	Adds § 3410.127(463)—4465) and 3410.138(69) to prior code, traffic control(10.08, 10.20)
C-5236	Amends § 5110.1 of prior code, board of health (2.24)
C-5237	Adds Part 12 and §§ 2397, 2397.1—2397.5 to prior code Art. II Ch. 3. citizens advisory commission on the handicapped (2.33)
C-5238	Repeals Ord. C-5227, real property transfer tax (Repealer)
C-5240	Adds prior code § 6.100.202.1, child health disability program fees (Title 5)
C-5241	Adds § 3410.127 (466)—(47l) and 3410.138 (70) to prior code, traffic control (10.08, 10.20)
C-5242	Amends prior code § 3550.8, police reserve corps power of arrest (Repealed by C-5536)
C-5243	Adds § 3410.127 (472)—(475) and 3410.131 (191) and repeals subsection (3) of § 3410.136 of prior code, traffic control (10.20, 10.24)
C-5244	Amends § 7510.2 of prior code, powers of recreation ranger-naturalist (16.16)
C-5245	Repeals subsection (19) of prior code § 3300.5, oil drilling areas (Repealed by C-5575)
C-5247	Adds § 3410.126(144) and 3410.131(192) and (193) to and amends § 3410.137(6) of prior code, traffic control (10.20, 10.24, 10.58)
C-5248	Adds § 3410.127 (476)—(483), 3410.131 (194) and (195), and 3410.138 (71); repeals subsection (45) of § 3410.136 of prior code traffic control (10.08, 10.20, 10.24)
C-5250	Adds(m)to 3410.403 of prior code, skateboard restrictions (10.54)
C-5252	Amends prior code § 1700. designates nine political subdivisions of the city (1.20)
C-5253	Adds Part 13 and § 2398, 2398.1—2398.5 to prior code Art. II Ch. 3. economic development commission (2.36)
C-5254	Adds § 3410.127 (484)—(486) to prior code, traffic control (10.20)
C-5255	Amends prior code § 7220.64, slip fees for Marina Basins (Repealed by C-5625)

Ordinance Number	Disposition
C-5256	Adds (m) to prior code § 7330.1, activities in public areas (Repealed by C-5624)
C-5257	Amends prior code § 3410.11, selling merchandise and soliciting contributions in public streets (14.04)
C-5259	Adds (n) and (o) to prior code § 3410.403, skateboarding restrictions (10.54)
C-5260	Adds prior code § 3410.127 (487)—(498) and 3410.131 (196) and (197), traffic control (10.20, 10.24)
C-5261	Amends subdivision (b) of Rule 7 and subdivision (a) of Rule 9 of prior code § 2212, council rules (2.03)
C-5262	Adds Div. 7 (6257, 6257.1—6257.8 on coin and stamp dealers) to prior code Art. VI Ch. 2 Part 5, and amends § 6255(c), business licenses (Title 5)
C-5263	Amends prior code § 3410.403(c), traffic control (10.54)
C-5264	Adds § 7210.16 to prior code, swimming prohibited in certain places (Repealed by C-5625)
C-5266	Adds § 4140.17—4140.41 to and amends § 4140.7 of prior code, bingo regulations (Title 5, 9.24)
C-5268	Adds § 3410.120 (41)(d), 3410.120 (55)—(57), 3410.125 (33), 3410.126 (145) and 3410.127 (499) and (500); and repeals subsections (19) and (53) of prior code § 3410.136, traffic control (10.12, 10.20, 10.40)
C-5270	Adds § 3410.127 (501); amends § 3410.75 and repeals § 3410.131 (197) of prior code, traffic control (10.20, 10.24, 10.58)
C-5271	Adds § 2480.6.2 to prior code, senior citizen utility tax refund (3.68)
C-5273	Adds language to and amends portions of § 6100.4; amends § 6100.8, 61009, 6100.11—6100.17, 6100.18(a), 6100.20(a), 6100.22, 6100.26(a)(3)—(5), 6100.29—6100.36, 6100.46, 6100.47, 6100.53, 6100.54, 6100.55(a), 6100.57, 6100.59(a), 6100.60, 6100.65(a), 6100.73—6100.75, 6100.79, 6100.82(a), 6100.86—6100.89, 6100.91(a), 6100.99, 6100.100(a), 6100.101, 6100.102, 6100.117—6100.119, 6100.121, 6100.122, 6100.127(a), 6100.128, 6100.130—6100.132, 6100.135(a), 6100.140, 6100.143(a), 6100.145—6100.147, 6100.152, 6100.153, 6100.154(a). 6100.156, 6100.164, 6100.165, 6100.167(a), 6100.169(a), 6100.171, 6100.174(a), 6100.180, 6100.182—6100.185, 6100.187 and 6211.7: repeals § 6100.10, 6100.81, 6100.83 and 6100.172 of prior code, business licenses (Title 5)
C-5276	Amends Subdivision 80 (§§ 8100.8000—8100.8014) of Art. VIII Ch. 1 Part 1 of prior code, earthquake hazard regulations for rehabilitation of existing structures (18.68)
C-5277	Amends prior code § 2770, imprest cash funds (3.20)
C-5278	Adds § 3410.120(58)(a), 3410.121 (53)(f) and 3410.127 (502) to and amends § 3410.12 1(49)(c) of prior code, traffic control (10.12, 10.20)
C-5279	Repeals § 6230.38 of prior code, traffic control (Repealer)
C-5280	Amends § 3410.63 of prior code, traffic control (10.38)

Ordinance Number	Disposition
C-5281	Adds § 7220.35.2 to prior code, mooring permits for homeowner association common structures (Repealed by C-5625)
C-5282	Salary for city council members (Repealed by C-5373)
C-5285	Adds § 7420.85 to prior code, airport regulations (16.44)
C-5287	Adds §§ 3410.127 (503) and (504), 3410.131 (198), 3410.134 (123) and (124), and 3410.137 (31) to prior code, traffic control (10.20, 10.24)
C-5288	Amends Rule 4-(a) of prior code § 2212, council rules (2.03)
C-5289	Adds § 3410.132 (37); amends 3410.134 (29) and (31) of prior code, traffic control (10.24)
C-5290	Adds § 3410.98, 3410.98, 1.3410.99, 3410.122 and 3410.123 to prior code, physically handicapped parking spaces (10.34)
C-5291	Amends § 7220.67 of prior code, Marina Basin slip fees (Repealed by C-5625)
C-5292	Adds § 7220.20.1 to prior code, bait gatherer's restrictions in Marina Basins (Repealed by C-5625)
C-5293	Adds § 7220.64.1 and 7220.67.5 to prior code, use of slips in Marina Basins (Repealed by C-5625)
C-5294	Amends prior code § 7220.68, Marina Basin regulations (Repealed by C-5625)
C-5295	Adds Rule 13 to prior code § 2212, city council rules (Repealed by C-6003)
C-5297	Amends § 3560 and 3560.l2 of prior code, patrolmen and patrol systems (Title 5)
C-5298	Adds (23) to and repeals (31) of prior code § 3410.137, traffic control (10.58)
C-5300	Amends prior code § 6100.20 (e), amusement machines (Title 5)
C-5302	Adds § 3410.4.2 to prior code, parking control checkers' authority (10.04)
C 5303	Adds §§ 3410.120(12)(c), (28)(h), (42)(c), (44)(b) and (49)(c), 3410.132(38)(a)—(c) and amends § 3410.121 (6)(d), (53)(a)and(55)(c)of prior code, traffic control (10.12, 10.24)
C-5305	Adds Part 3(§ 7430) to prior code Ch. 4. tennis trust account (3.72)
C-5306	Amends prior code § 7230.3, launching vessels from beaches (Repealed by C-5625)
C-5307	Adds §§ 7230.6, 7230.30—7230.41 and 7230.60—7230.62 to, amends §§ 7210.1, 7210.4—7210.6, 7210.12, 7220.4.1, 7230, 7230.1 and 7230.5 of and repeals §§ 7210.2, 7210.7 —7210.11, 7210.13—7210.15 and 7230.2 of prior code, ocean, beach, shoreline and harbor areas and facilities (Repealed by C-5625)
C-5308	Adds § 7480.9 to prior code, golf starter ranger enforcement authority (16.28)
C-5309	Adds §§ 3410.127 (505) and (506), 3410.132 (39) and 3410.134 (125) to and amends § 3410.12 (16) of prior code, traffic control (10.20, 10.24, 10.28)
C-5310	Amends prior code § 91 20.3(A) and § 9120.17, zoning(Title 21)
C-5311	(Repealed by C-5419)
C-5312	Adds § 9120.39 (§§ 9120.39.10—9120.39.80) to prior code, sign code (Title 21)
C-53 13	Amends prior code § 9120.31 and repeals § 9120.25 (H) zoning (Title 21)

Ordinance Number	Disposition
C-5314	Amends § 7480.1 and repeals § 7480.5 of prior code, golf course fees (16.28)
C-5315	Adds Ch. 8 (§§ 2800—2802 and 2804—2812) to prior code Art. II, equal opportunity contract compliance program (2.72)
C-5316	Amends Part I (§§ 7410 and 7410.1—7410.5) of prior code Art. VII Ch. 4 and repeals former Part I (§§ 7410—7410.25). Long Beach Convention Center (16.32)
C-5317	Adds Part I (to include present §§ 7300.1—7300.17) and Part 2 (§§ 7310.1—7310.11) to prior code Art. VII Ch. 3 and amends § 3410.110, public parks and beaches (10.22, 10.30)
C-5320	Adds §§ 5120.23—5120.27, 5620.19 and 5620.20 to, amends §§ 5220, 5220.1, 5220.2, 5220.4, 5220.6—5220.9, 5220.14 (a)—(f), 5220.15 (a)—(c) and 5220.16 of and repeals § 5210, 5210.1—5210.19, 5220.3, 5220.5.5 and 5220.10—5220.13 of prior code, rubbish collection and disposal (6.16, 8.08, 8.60)
C-5324	Adds § 6100.70 to prior code, business licenses (Repealed by C-5473)
C-5325	Amends prior code § 7461, gas rates (15.36)
C-5326	Adds §§ 3410.127(507), (509) and 3410.13 1 (199) to prior code, traffic control (10.20, 10.24)
C-5329	Amends Part 3 (8130.100) of Art VIII Ch. 1 of prior code, electrical regulations (18.28, 18.32)
C-5330	Amends Part 2(8120.100—8120.149) of prior code Art. VIII Ch. 1, and repeals prior code §§ 8120.201, 8120.226, 8120.228, 8120.229, 8120.230 and 8120.232, 8120.252, plumbing regulations (18.40, 18.44)
C-5331	Amends prior code § 3100.100, fire prevention regulations (18.48)
C-5332	Amends prior code § 8100.10 1, Subdivisions 1—4 and 1—6 of Art. VIII Ch. 1 Part I (§§ 8100.102, 8100.106, 8100.201, 8100.224, 8100.301, 8100.314, 8100.401, 8100.427 and 8100.1601—8100.1606 respectively, § 8160.102 and 8300.14, repeals §§ 8100.4601, 8100.4621 and 8150.10, 8150.1307 of prior code, building, housing and mechanical codes and regulations (18.04, 18.08, 18.12, 18.16, 18.20, 18.24, 18.52, 18.64)
C-5333	Amends prior code §§ 9120.24 (B) and 9120.33—9120.38. zoning (Title 21)
C-5334	Adds §§ 3410.122 (1), 3410.127 (510) and(511), and 3410.132 (40)and (41); amends § 3410.134(35) and repeals §§ 3410.128 (26) and (27) and § 3410.132 (8) of prior code, traffic control (10.14.10.20, 10.24.10.34)
C-5335	Amends prior code §§ 5620.18 (b) and 6100.202 (f), health department permit and inspection fees (Title 5, 6.24)
C-5336	(Repealed by C-6058)
C-5337	Commercial and industrial land banks (3.76)
C-5339	Amends prior code § 7220.64, Marina Basins slip fees (Repealed by C-5625)

Ordinance Number	Disposition
C-5341	Adds Part 8(§§ 6280, 6280.1—6280.4, 6281 and 6281.1—6281.3) to Art. VI Div. I Ch. 2 of prior code, towing services (Title 5)
C-5342	Amends prior code §§ 4140.19, 4140.20, 4140.22 (7) and 4140.29, bingo regulations (Title 5)
C-5346	Adds § 9120.40 to and amends § 9120.3 (D)(2) of prior code, zoning (Title 21)
C-5347	Amends prior code §§ 9110.8, 9110.73, 9120.17 (c)—(e), 9120.24 (A), 9120.25 (A) and (D), and 9301, subdivisions and zoning (Title 21)
C-5348	Adds § 7300.1(a) to prior code, watercraft in city parks (Repealed by C-5624)
C-5349	Amends prior code § 9120.39 (c)(2), zoning (Title 21)
C-5350	Adds Part 1(§§ 4210.1—4210.3, 4211 and 4212 to prior code Art. IV Ch. 2, emergency water conservation plan appeals (Repealed by C-6413)
C-5352	Adds §§ 3410.120 (21)(b), 3410.127 (512) and 3410.131 (201) to and amends § 3410.121 (46) of prior code, traffic control (10.12, 10.20, 10.24)
C-5353	Adds (200) to prior code § 3410.131, traffic control (10.24)
C-5354	Adds Div. 1.5 (4611.10—4611.26) to Art. IV Ch. 6 of prior code, public nuisances and maintenance of property (8.76)
C-5355	Adds §§ 3410.122 (2), 3410.127 (513) and 3410.128(b)(70) to, amends § 3410.100, and repeals § 3410.101 of prior code, traffic control (10.20, 10.26, 10.34)
C-5356	Adds Div. 10 (§ 6279.3) to prior code Art. VI Ch. 2 Part 7, auto repair shop parking restrictions (Title 5)
C-5357	Repeals prior code § 3420.12 (2)—(22) for the period of November 1, 1977 to April 30, 1978 and reactivates such provisions as of May 1, 1978 unless city council takes action to the contrary, pertaining to traffic control (10.28)
C-5358	Adds § 6100.225 to prior code, business licenses (Title 5).
C-5359	Amends prior code § 3410.125 (30), traffic control (10.40)
C-5360	Adds § 91 20.41 to prior code, adult entertainment business location zoning (Title 21)
C-5361	Adds (b)(21) to and repeals (b)(70) of prior code § 3410.128, traffic control (10.14)
C-5362	Amends prior code § 3410.403 (n), traffic control (10.54)
C-5363	Adds §§ 3410.123 (1) and 3410.127 (514), (515) and (516) to prior code, traffic control (10.20, 10.34)
C-5364	Adds Part 14 (§§ 2399, 2399.1—2399.10) to prior code Art. II Ch. 3, cultural heritage committee (2.63)
C-5365	Adds §§ 3410.120 (59)(a), 3410.122 (3), 3410.127 (517) and 3410.128 (70) to and amends § 3410.132 (28) of prior code, traffic control (10.12, 10.14, 10.20, 10.24, 10.34)
C-5366	Amends Div. 4(§§ 2614, 2614.1—261 4.3) of prior code Art. II Ch. 6. redevelopment revolving fund (3.24)
C-5367	Amends prior code § 9120.10 (B), zoning (Title 21)
C-5368	Amends Part 7 of official Use District Map (Special)

Ordinance Number	Disposition
C-5369	Adds §§ 3410.123 (2)—(6), 3410.127 (518)—(521) and 3410.131 (202) to and repeals (30) of § 3410.136 of prior code, traffic control (10.20, 10.24, 10.34)
C-5370	Amends § 12 of Ord. C-4703, franchise (Special)
C-5371	Adds Part 3 (§§ 4430, 4430.1—4430.12) to prior code Art. IV Ch. 4 and repeals prior code § 4410.4, noise control regulations (8.80)
C-5372	Amends prior code § 8100.8002, earthquake hazard regulations for building rehabilitation (18.68)
C-5373	Salary for city council members; repeals Ord. C-5282(Repealed by C-5505)
C-5374	Adds §§ 3410.123 (7)—(9), 3410.127 (522) and (523) and 3410.131 (203) to prior code, traffic control (10.20, 10.24, 10.34)
C-5375	Adds § 8100.225 to prior code, emergency abatement of hazardous buildings (18.20)
C-5376	Adds § 3410.122 (4) and 3410.132 (42) to, and repeals § 3410.131 (35) of prior code, traffic control (10.24, 10.34)
C-5377	Adds §§ 6100.221.1 and 6100.221.2 to and amends §§ 2500.355, 2500.355.1, 2500.356—2500.359, 2715.1, 2715.3 and 6100.221 of prior code, refunds of various fees and charges (3.48)
C-5378	Amends prior code § 2730, contracts with the city (2.84)
C-5379	Amends Part 11 of official Use District Map (Special)
C-5380	Amends Part 2 of official Use District Map (Special)
C-5381	Amends Part 10 of official Use District Map (Special)
C-5382	Amends Part 12 of official Use District Map (Special)
C-5383	Amends Part 15 of official Use District Map (Special)
C-5384	Adds §§ 3410,123 (10), 3410.127 (524)—(529), 3410.132 (43) and 3410.138 (72); amends § 3410.121 (30)(a) and 3410.136 (8), and repeals § 3410.13 l(146) of prior code, traffic control (10.12, 10.20, 10.24, 10.34)
C-5385	Amends Part 11 of official Use District Map (Special)
C-5386	Amends Part 8 of official Use District Map (Special)
C-5387	Amends Part 10 of official Use District Map (Special)
C-5388	Adds § 2710.1 to prior code, claims against the city (3.48)
C-5389	Amends §§ 9120.18(B) and 9120.26(D) and (H)(1) of prior code, zoning (Title 21)
C-5390	Adds §§ 3410.120 (43)(b) 3410.122 (5), 3410.123 (11), 3410.127 (530), 3410.128 (71) and 3410.132 (44) to prior code, traffic control (10.12, 10.14, 10.20, 10.24, 10.34)
C-5391	Adds Part 15 (2400 and 2400.1) to prior code Art. II Ch. 3, term of office for boards, commissions and committees (Repealed by C-5709)
C-5392	Amends prior code § 8100.314 (b) and(c), building permits (Repealed by C-5493)
C-5393	Amends Part 5 of official Use District Map (Special)

Ordinance Number	Disposition
C-5394	Adds §§ 3410.120 (60), 3410.122 (6), 3410.127 (531)—(533), 3410.133 (41) and (42), 3410.134 (126), 3410.137 (24) and 3410.403 (p); amends § 3410.131 (118) and 3410.134 (67): repeals §§ 3410. 134 (119) and (120) and 3410.137 (9) and (10) of prior code, traffic. control (10.12, 10.20, 10.24, 10.34, 10.54, 10.58)
C-5395	Authorizes board of harbor commissioners to administer certain area and personnel pertaining to the RMS Queen Mary (Special)
C-5396	Amends Rule 6 of prior code § 2212, city council rules (2.03)
C-5397	Amends prior code § 6100.136 (b), business licenses (Title 5)
C-5398	Adds §§ 1200.2 and 3410.104; amends part of § 3410.1; amends headings of §§ 3410.131, 3410.133 and 34101 34, and entirely amends §§ 3410.100, 3410.101, 3410.106, 3410.107, 3410.110, 3410.111, 3410.130, 3410.132 and 7310.11; repeals §§ 3410.39, 3410.72, 3410.92, 3410.93, 3410.105 and 3410.129 of prior code, traffic control (1.36, 10.02, 10.22, 10.24, 10.26)
C-5399	Adds §§ 6000, 60001—6000.10, 61001—6100.3, 6100.10, 6110—6118; amends §§ 6100, 6100.4—6100.9, 6100.11—6100.13, 6100.13.1, 6100.20, 6100.26, 6100.43—6100.45, 6100.47, 6100.58, 6100.94, 6100.99.1, 6100.101, 6100.135—6100.137, 6100.143, 6100.170, 6100.184 and 6100.186; repeals §§ 6100.14—6100.19, 6100.205, 6100.21—6100.24, 6100.27—6100.38, 6100.38.1, 6100.39—6100.42, 6100.46, 6100.48, 6100.53—6100.55, 6100.57, 6100.59—6100.65, 6100.71—6100.79, 6100.82, 6100.86—6100.89, 6100.91—6100.93, 6100.96—6100.100, 6100.102—6100.105, 6100.109—6100.111, 6100.113, 6100.115—6100.122, 6100.124, 6100.126—6100.128, 6100.130—6100.132, 6100.140—6100.142, 6100.144—6100.148, 6100.151—6100.169, 6100.171, 6100.174—6100.177, 6100.179—6100.183, 6100.185, 6100.187—6100.191, 6100.191.5, 6100.192—6100.196, 6100.198—6100.201, 6100.203, 6100.204, 6100.207—6100.217 and 6100.220—6100.224 of prior code, business licenses (Title 5)
C-5400	Amends prior code § 7480.1, golf course fees (16.28)
C-5401	Amends prior code § 5220.14(a) and (b), refuse collection charges (8.60)
C-5402	Amends prior code § 3470.6, overweight vehicle permits (10.56)
C-5403	Amends prior code §§ 5610.14, 5610.15, 5610.42, 5610.45 and 5610.46, animal control licenses and charges (6.04, 6.08)

Ordinance Number	Disposition
C-5404	Amends prior code § 7580.13, excavation permit and inspection fees (14.08)
C-5405	Amends prior code § 7570.10, industrial liquid waste disposal permit (15.16)
C-5406	Amends prior code §§ 7570.24, 7570.28, 7570.29, sewer permit fees (15.08, 15.12 repealed by C-7173)
C-5407	Amends § 7520.7 and repeals §§ 7420.8 and 7420.9 of prior code, airport rates and fees (16.44)
C-5408	Adds § 6100.202(h) and (i) to and amends §§ 5620.18(b) and 6100.202(a), (b) and (f) of prior code, health department fees (6.24)
C-5409	Amends prior code § 3100.100 by adding § 1.309 to and amending § 1.302 of Uniform Fire Code, permit fees (18.48)
C-5410	Adds §§ 7570.102—7570.107 to prior code, sewage disposal charges (Repealed by C-5415)
C-5411	Repeals prior code § 8100.313, building fees (Repealer)
C-5412	Adds Part 7 (§§ 8170.100—8170.116) on mechanical regulations to prior code Art. VIII Ch. 1; amends §§ 8100.101, 8100.202(c), 810.0205, 8100.212, 8100.301—8100.303, 8100.305, 8100.308(a), (b), (g)—(k), 8100.309(c), 8100.311(c), 8100.312(d), 8100.414, 8120.109, 8120.110, 8120.122, 8120.125, 8120.128, 8120.129, 8130.105, 8130.107, 8130.200—8130.202, 8130.206, 8130.209—8130.211 and 8300.14; repeals §§ 8120.127 and 8130.204 of prior code, building, housing, plumbing, electrical and house moving regulations (18.12, 18.16, 18.20, 18.24, 18.32, 18.36, 18.44, 18.52)
C-5413	Amends §§ 2397.1, 2397.3 and 2397.5 of prior code, citizens' advisory commission on the handicapped (2.33)
C-5414	Budget for 1978-79 (Special)
C-5415	Repeals prior code §§ 7570.102—7570.107 inclusive, sewage disposal charges (Repealer)
C-5416	Amends Part 10 of official Use District Map (Special)
C-5417	Adds § 9110.56.1 to prior code, zoning (Title 21)
C-5418	Adds §§ 3410.127(534), 3410.122(7), 3410.127(535) and (536), 3410.122(8), and 3410.403(q); amends §§ 3410.131(73), (201), 3410.121(50)(a) and 3410.133(39); repeals § 3410.136(59) of prior code, traffic control (10.12, 10.20, 10.24, 10.34, 10.54)
C-5419	Designates, creates and consolidates departments, bureaus and divisions of city government, repeals Ord. C-5311(Repealed by C-5506)
C-5420	Amends Part 3 of official Use District Map (Special)

Ordinance Number	Disposition
C-5421	Amends §§ 9120.39.10—9120.39.80 of prior code, sign code (Title 21)
C-5422	Repeals Ord. C-5408 except for § 1 of said ordinance amending § 5620.18(b) and that portion of § 2 amending § 6100.202(f), health department fees (Title 5, 6.24)
C-5423	Amends prior code § 8140.11, signs on public property (Repealed by 07-0062)
C-5424	Amends § 8 of Ord. C-5106, proceeds from parking and business improvement tax (Special)
C-5425	Adds §§ 3410.120(34)(d), 3410.122(9)—(11) and 3410.127(537) and (538); repeals § 3410.136(2) of prior code, traffic control (10.12, 10.20, 10.34)
C-5426	Adds Part 9 (§ 2781) to prior code Art. II Ch. 7, judicial review of administrative decisions (2.96)
C-5427	Amends Part 5 of official Use District Map (Special)
C-5428	Amends §§ 1 and 2 of Ord. C-5337, land bank (3.76)
C-5429	Amends Part 18 of official Use District Map (Special)
C-5430	Tax levy for 1978-79 (Special)
C-5431	Adds §§ 4140.22(8) and (9), 4140.27(b), 4140.31.1 and adds paragraph to § 4140.24; amends §§ 4140.20, 4140.22(3), 4140.28, 4140.29, 4140.34, 4140.36 and 4140.37 of prior code, bingo regulations (Rejected by voters)
C-5432	Amends §§ 7220.34, 7220.48 and 7220.49, marina area construction and mooring fees (Repealed by C-5625)
C-5433	Amends § 9120.40 of prior code, zoning (Title 21)
C-5434	Amends Part 3 of official Use District Map (Special)
C-5435	Amends Part 3 of official Use District Map (Special)
C-5436	Adds § 3410.127(539)—(542) to and amends §§ 3410.63, 3410.104 and 3410.127(177) of prior code, traffic control (10.20, 10.22, 10.38)
C-5437	Adds Div. 5 and §§ 2615, 2615.1 and 2615.2 to prior code Art. II Ch. 6 Part 1, retirement and social security fund (3.28)
C-5438	Amends prior code §§ 7310.3, 7310.4, 7310.5 and 7310.7, beach area parking lot fees (10.30)
C-5439	Amends § 3410.100(c) of prior code, traffic control (10.26)
C-5440	Amends Part 11 of official Use District Map (Special)
C-5441	Amends Part 2 of official Use District Map (Special)
C-5442	Adds §§ 3410.122(12)—(14), 3410.123(12), 3410.127(543)—(547) and 3410.138(73)—(75) and amends § 3410.131(41) of prior code, traffic control (10.08, 10.20, 10.24, 10.34)
C-5443	Amends prior code § 7480.6(b), golf course fees (16.28)
C-5444	Adds § 5220.18 to prior code, cleaning of sidewalks (8.60)
C-5445	Adds § 7300.1(f) and 7310.12 to and amends heading and (e) of § 7300.1, and § 7300.6 and 7300.10 of prior code, public parks and beaches (10.30)
C-5446	Harbor District area designated (Special)
C-5447	Adds (b)(17)—(23) to § 3410.132 and repeals § 3410.131(203) of prior code, traffic control (10.24)

Ordinance Number	Disposition
C-5448	Adds §§ 3410.120 (46)(c), 3410.122 (15), 3410.127 (548)—(550), 3410.130 (12) and 3410.132 (a)(6) to and repeals §§ 3410.122 (6), 3410.127 (539) and 3410.136 (41) of prior code, traffic control (10.12, 10.20, 10.24, 10.34)
C-5449	Adds Part 8 (6100.250—6100.267) to prior code Art. VI Ch. 2, alarm systems (Title 5)
C-5450	Harbor District area designated (Special)
C-5451	Amends Part 18 of official Use District Map, prezone (Special)
C-5452	Amends Part 17 of official Use District Map, prezone (Special)
C-5453	Amends Part 15 of official Use District Map, prezone (Special)
C-5454	Amends Part 13 of official Use District Map, prezone (Special)
C-5455	Amends Part 11 of official Use District Map, prezone (Special)
C-5456	Amends Part 11 of official Use District Map, prezone (Special)
C-5457	Amends prior code § 8100.309 (b) and (c). building permits (18.12)
C-5458	Adds Part 3 (§§ 4630, 4630.1 and 4630.2) to prior code Art. IV Ch. 6, pressurized cans containing paint (9.56)
C-5459	Amends Part 12 of official Use District Map, prezone (Special)
C-5460	Amends §§ 7220.63 (b), 7220.64, 7220.64.1, 7220.67, 7220.67.1, 7220.67.5 and 7230.61 of prior code, marina area parking and boat launching fees (Repealed by C-5625)
C-5461	Temporarily prohibits establishment or licensing of entertainment cafes, social clubs, dance halls and dances, card rooms, card tables, pool halls, billiard halls and bowling alleys (Repealed by C-5481)
C-5462	Establishes procedure for preparation and analysis of measures to be voted on at city elections; repeals Ords. C-3579 and C-5105(1.24)
C-5463	Approves Resolution 854 and water rates fixed in said resolution (Special)
C-5464	Amends Part 2 of official Use District Map (Special)
C-5465	Amends Part 11 of official Use District Map (Special)
C-5466	Amends Part 8 of official Use District Map (Special)
C-5467	Amends Part 5 of official Use District Map (Special)
C-5468	Amends Part 12 of official Use District Map (Special)
C-5469	Amends Part 3 of official Use District Map (Special)
C-5470	Amends § 600.5 of prior code, business licenses (Title 5)
C-5471	Adds §§ 3410.122 (16)—(18), 3410.127 (551)—(553) and 3410.132 (b)(24) to prior code, traffic control (10.20, 10.24, 10.34)
C-5472	Temporarily prohibits new off-premises signs (Special)
C-5473	Repeals prior code § 6100.70, business licenses (Repealer)
C-5474	Amends § 61 16, business licenses (Title 5)
C-5475	Adds Part 3 (7320, 7320.1 —7320.3) to prior code Art. VII Ch. 3, El Dorado Park East (16.20)

Ordinance Number	Disposition
C-5476	Amends Part 4 of official Use District Map (Special)
C-5477	Amends Part 11 of official Use District Map (Special)
C-5478	Amends Part 11 of official Use District Map (Special)
C-5479	Designates certain buildings as historical landmarks (16.52)
C-5480	Amends Part 2 of official Use District Map (Special)
C-5481	Prohibits establishment or licensing of special clubs until July 1, 1979 or until another ordinance regulating social clubs takes effect; repeals Ord. C-5461(Special)
C-5482	Amends Part 5 of official Use District Map (Special)
C-5483	Approves certain lease agreement between city and redevelopment agency (Special)
C-5484	Amends § 8 of Ord. C-S 106, parking and business improvement tax (Special)
C-5485	Adds §§ 3410.122 (19) and (20), 3410.127 (554) and (555), 3410.131 (204), 3410.132 (a)(7) and 3410.133 (43) and (45); amends § 3410.131 (162); repeals §§ 3410.133 (39) and 3410.136 (13) of prior code, traffic control (10.20, 10.24, 10.34)
C-5486	Amends Part 10 of official Use District Map (Special)
C-5487	Amends entirety of prior code Art. IX Ch. 1 Part 2, zoning regulations; repeals Art. IX Ch. 2 on shoreline development (Title 21)
C-5488	Repeals prior code § 3410.95, traffic control (Repealer)
C-5489	Amends prior code § 4611.25 (a), maintenance of property (8.76)
C-5490	School-crossing guard program (10.68)
C-5491	Adds §§ 3410.122 (21)—(27), 3410.127 (556) and (557), 3410.128 (a)(72) and 3410.132 (b)(25) to prior code, traffic control (10.20, 10.24, 10.34)
C-5492	Amends Part 10 of official Use District Map (Special)
C-5493	Repeals prior code § 8100.314, building permits (Repealer)
C-5494	Adds § 4130.12 to prior code, traffic control (9.30)
C-5495	Amends prior code §§ 8130.100, 8130.108, 8130.114 and 8130.300; repeals §§ 8103.103, 8130.104, 8130.115 (g), 8130.301—8103.309 and 8130.312—8130.324, electrical code and electrical regulations (18.28, 18.32)
C-5496	Adds §§ 3410.122 (28) and (29), 3410.127 (558)—(560), 3410.133 (46) and (47) to, amends § 3410.134 (109), and repeals § 3410.22 (16) of prior code, traffic control (10.20, 10.24, 10.34)
C-5497	Prohibits demolition of any structure built before 1933 in designated area for nine months from May 8, 1979 (Special)
C-5498	Adds §§ 3410.122 (30), 3410.127 (561)—(563) and 3410.132 (c)(29) and (30) to, amends § 3410.132 (a)(4), and repeals § 3410.136 (4), (18) and (55) of prior code, traffic control (10.20, 10.24, 10.34)
C-5499	Amends § 7510.12 of prior code, park ranger peace officer powers (16.16)
C-5500	Amends Part 25 of official Use District Map (Special) .
C-5501	Amends portion of Ord. C-5328, development and use standards for SEADIP PD District (Repealed by C-6058)
C-5502	Budget for 1979-1980 (Special)

Ordinance Number	Disposition
C-5503	Adds Div. 18 (§§ 3410.500 —3410.503) to prior code Art. III Ch. 4 Part 1, roller skating restrictions (10.52)
C-5504	Amends § 6100.99.2 of prior code, business licenses (Title 5)
C-5505	Salary for city council members; repeals Ord. C-5373 (Repealed by C-5603)
C-5506	Designates, creates and consolidates departments, bureaus and divisions of city government; repeals Ord. C-5419 (Repealed by C-5606)
C-5507	Contract between City and California Public Employees' Retirement System (Special)
C-5508	Amends prior code § 2454, transient occupancy tax (3.64)
C-5509	Adds §§ 3410.122 (31) and (32), 3410.123 (13) and 3410.127 (564)—(570) to prior code, traffic control (10.20, 10.34)
C-5510	Amends Part 28 of official Use District Map (Special)
C-5511	Adds Div. 19(§§ 3410.600 —3410.611) to prior code Art. III Ch. 4 Part 1, residential area preferential parking privileges (10.32)
C-5512	Amends prior code § 6100.8, business licenses (Title 5)
C-5513	Amends Part 12 of official Use District Map (Special)
C-5514	Repeals Art. VII Ch. 2 Part 1(§§ 7210, 7210.1, 7210.3 —7210.6, 7210.12 and 7210.16) and adds new Art. VII Ch. 2 Part 1 (§§ 7210 and 7210.1—7210.5) to prior code, harbors and piers; amends prior code § 7220.4.1, enforcement powers (Repealed by 5625)
C-5515	Amends prior code § 7480.1, golf course fees (16.28)
C-5516	Adds § 2400.2 to prior code, Metropolitan Water District board representatives (Repealed by C-5709)
C-5517	Adds § 3410.122 (33)—(36), 3410.127 (571), 3410.131 (205) and (206), 3410.134 (76) and 3410.138 (76) to prior code, traffic control (10.08, 10.20, 10.24, 10.34)
C-5518	Amends Parts 15, 21 and 22 of official Use District Map (Special)
C-5519	Amends § 3410.125 (30) of prior code, traffic control (10.40)
C-5520	Adds Item (12) to § 9120.8 (b)(3)(B) and adds language to § 9120.18 (b); amends first paragraph of § 9120.8 (b) and amends § 9120.8 (c)(2)(A) and Item (3) of § 9120.9 (c)(9)(C) of prior code, zoning (Title 21)
C-5521	Amends prior code § 9120.4 (d)(5)(B)(1), zoning (Title 21)
C-5522	Adds § 3410.122(37) and 3410.132 (a)(8) and (b)(26) to prior code, traffic control (10.24, 10.34)
C-5523	Designates certain building as a Historical Landmark (16.52)
C-5524	Adds § 3410.127 (572)—(579) to and repeals § 3410.136(56) of prior code, traffic control (10.20)
C-5525	Adds § 1200.3, amends §§ 6230.1—6230.7 and repeals §§ 6230.8—6230.45 of prior code, licenses for amusement activities (1.36, Title 5)
C-5526	Amends prior code § 9120.18(b), zoning (Title 21)
C-5527	Adds §§ 3410.127 (580) and (581) and 3410.133 (48) to and repeals § 3410.136(8) and (17) of prior code, traffic control (10.20, 10.24)
C-5528	Amends prior code § 5610.16, dog tags (6.08)

Ordinance Number	Disposition
C-5529	Amends Part 11 of official Use District Map (Special)
C-5530	Adds §§ 3410.122 (38) and 3410.127 (582) to, amends §§ 3410.12 (17) and 3410.134 (31), and repeals §§ 3410.12 (18) and (19) and 3410.134 (32) and (33) of prior code, traffic control (10.20, 10.24, 10.28, 10.34)
C-5531	Amends prior code § 6100.136, business licenses (Title 5)
C-5532	Amends Part 22 of official Use District Map (Special)
C-5533	Amends prior code § 5220.16, refuse collection and disposal (8.60)
C-5534	Amends §§ 7220.48, 7220.49 and 7220.64 of prior code, marina area mooring fees (Repealed by C-5625)
C-5535	Amends prior code § 7220.21, fishing prohibited in marina area (Repealed by C-5625)
C-5536	Amends § 3550 and repeals §§ 3550.2—3550.13 of prior code, police reserve corps (2.15)
C-5537	Adds § 3410.127 (583)—(597) to and repeals § 3410.122 (30) and 3410.126 (83) of prior code, traffic control (10.20, 10.34)
C-5538	Amends prior code § 7461, gas rates (15.36)
C-5539	Adds § 3410.122(39)—(42) to prior code, traffic control (Repealed by C-7469)
C-5540	Adds § 3410.138 (77) to, amends § 3410.132 (c)(29) and (30), and repeals §§ 3410.122 (23) and 3410.138 (30) and (72) of prior code, traffic control (10.08, 10.24, 10.34)
C-5541	Amends Part 10 of official Use District Map (Special)
C-5542	Amends Part 11 of official Use District Map (Special)
C-5543	Amends Part 11 of official Use District Map (Special)
C-5544	Amends Parts 28, 29 and 30 of official Use District Map (Special)
C-5545	Amends prior code § 2455, special advertising and promotion fund (3.64)
C-5546	Adds §§ 3410.122 (43)—(45), 3410.125 (34) and 3410.127 (598) and (599) to and repeals § 3410.136 (9) of prior code, traffic control (10.20, 10.34, 10.40)
C-5547	Adds Div. 20 (§§ 3410.700 —3410.703) to prior code Art. III Ch. 4 Part 1, handicapped parking on privately owned and maintained off-street parking facilities (10.36)
C-5548	Amends Part 11 of official Use District Map (Special)
C-5549	Approves Resolution 867 of City Board of Water Commissioners, water rates (Special)
C-5550	Adds Part 3 (§§ 2630 and 2631) to prior code Art. II Ch. 6, checks (3.44)
C-5551	Adds §§ 3410.123 (14), 3410.127 (600) and 3410.132 (c)(31) to prior code, traffic control (10.20, 10.24, 10.34)
C-5552	Prohibits building projects in certain R-4-N districts for one year from ordinance effective date (Special)
C-5553	Adds § 3410.403 (r)—(v) and 3410.503 (b)—(f) of prior code, traffic control (10.52, 10.54)
C-5554	Amends (a), (d), (f), (h) and (i) and repeals (j) of 7532.1 of prior code, news racks on sidewalks (14.20)

Ordinance Number	Disposition
C-5555	Amends § 7461 of prior code, gas rates (15.36)
C-5556	Amends entirety of Art. IX Ch. 1 Part 1 of prior code, subdivisions (20.04, 20.08, 20.12, 20.16, 20.20, 20.24, 20.28, 20.32, 20.36, 20.40)
C-5557	Amends Parts 11 and 17 of official Use District Map (Special)
C-5558	Amends prior code §§ 2715.1, 6100.13.1 and 7220.51, and repeals § 6100.221.2, refunds of fee payments (3.48, Title 5)
C-5559	Adds paragraph 4 to (i) of § 9102.14 (c) and language to § 9102.18 (b); amends §§ 9102.2 (a), 9120.3 (e) (4), 9120.4 (i)(3)(A) Item 2, 9120.8 (a), (b)(1)(Table) and (c), 9120.9 (a), (b), Tables 9.1—9.3 and (c) paragraph 4; repeals (aa) and (bb) of § 9120.4 (i)(3) (A)(2) of prior code, zoning (Title 21)
C-5560	Amends Part 11 of official Use District Map (Special)
C-5561	Amends Parts 6, 7 and 12 of official Use District Map and establishes planned development for 62nd Place on the Peninsula and for Long Beach Marina (Special)
C-5562	Amends Part 5 of official Use District Map and establishes Belmont Pier planned development (Special)
C-5563	Amends Parts 3, 4 and 10 of official Use District Map and establishes Downtown Shoreline and Ocean Boulevard planned developments (Special)
C-5564	Adds §§ 3410.122 (46), 3410.127 (601) and (602) and 3410.132 (b)(27) to and repeals § 3410.122(20) of prior code, traffic code (10.20, 10.24, 10.34)
C-5565	Adds § 4140.31 (1) and (2) to and amends §§ 4140.17, 4140.20, 4140.29 and 4140.36 of prior code, bingo regulations (Title 5)
C-5566	Designates Drake Park as an Historic Landmark District (16.52)
C-5567	Amends Part 29 of official Use District Map (Special)
C-5568	Amends first paragraph of prior code § 5230.4, weed removal (8.56)
C-5569	Amends prior code § 7461, gas rates (15.36)
C-5570	Adds §§ 3410.122 (47), 3410.127 (603) and (604), 3410.132 (a)(9) and (10), 3410.138 (78) and 3410.703 (1) to and amends § 3410.122 (8), 3410.123 (10) and 3410.134 (29) of prior code, traffic control (10.08, 10.20, 10.24, 10.34)
C-5571	Dedicates Bixby Park area to public park uses in perpetuity, implementing Local Coastal Program (Special)
C-5572	Amends Part 10 of official Use District Map (Special)
C-5573	Adds §§ 91208 (c)(8)(B)(2) (ff) and (D)(4), 91209 (b) (2)(A)(8)—(11)(c)(Table 92), (c)(6)(H) and (c)(9) (D), 9120.10 (c)(8)(D); 9120.11 (b)(1)(S) and (b)(5), 9120.15 (c)(1) and (c)(3)(D)(16) and (17); amends §§ 9120.4 (e)(2) and (f)(4) and (6); 9120.7 (c); 9120.8 (b), (c)(8)(O)(1) and (5), and (c)(8)(D)(1); 9120.9 (b)(2)(A), (b)(2)(A) (3) and (c)(9)(A)(4)(cc); 9120.10(b)(1), Table 101, (c)(5)(H) and (c)(8)(A) (4)(cc); 9120.11 (b)(3), (c)(12)(A)(cc); 9120.15 (c)(3)(D)(15), (c)(3)(E) (4)(bb) and (c)(3)(E)(6) (bb), and 9120.18 (b) of prior code, zoning (Title 21)

Ordinance Number	Disposition
C-5574	Amends prior code § 2751, revenue bond issuance procedures (Repealed by C-5618)
C-5575	Adds Part 1 (§§ 3300.1, 3300.2, 3300.2.5), Part 2 (§§ 3300.5—3300.24) and Parts 3—7 (§§ 3300.25—3300.28, 3300.28.1, 3300.29—3300.73) to prior code Art. III Ch. 3; repeals Part 1 (§ 3300.1), §§ 3300.2 and 3300.5—3300.100 inclusive of Part 2, and §§ 3300.101—3300.167 inclusive of Parts 3—6 inclusive of Art. III Ch. 3 of prior code, oil code (12.04, 12.08, 12.12, 12.16, 12.20, 12.24, 12.28, 12.32, 12.36, 12.40, 12.44, 12.48, 12.52, 12.60)
C-5576	Amends prior code § 4430.10 (b)(2), noise control (8.80)
C-5577	Amends § 15.1001(a) of Uniform Fire Code as contained in prior code § 3100.100(b), fire prevention regulations (18.48)
C-5578	Amends prior code § 8100.308(a), building permit fees (18.12)
C-5579	Adds § 6223.4(b)(6) to and amends § 6100.9(a)(1) of prior code, business licenses (Title 5)
C-5580	Amends Part 10 of official Use District Map (Special)
C-5581	Amends prior code § 9120.9 (c)(1) Table 9.2; 9120.10 (c)(1) Table 10.2; 9120.11(c)(5); 9120.15 (c) (1) and (c)(3)(O)(2)(ii), zoning (Title 21)
C-5582	Amends prior code earthquake hazard regulations (18.68)
C-5583	Amends Part 8 of official Use District Map (Title 21)
C-5584	Amends prior code § 2454, transient occupancy tax (3.64)
C-5585	Amends prior code § 9110.7, condominium and apartment conversions (20.32)
C-5586	Establishes deferred compensation fund (3.12)
C-5587	Amends Part 16 of official Use District Map (Special)
C-5588	Amends prior code § 9120.3 (e)(6), zoning (Special)
C-5589	Establishes certain setback line; repeals Ord. C-998 (1930) and declares zoning regulations applicable to such properties (Special)
C-5590	Restricts building permits for developments exceeding R-4-R standards in R-4-N districts (Special)
C-5591	Amends prior code § 7532, merchandise for sale on public ways (14.04)
C-5592	Adds § 3410.95 to prior code, traffic control (10.22)
C-5593	Adds §§ 3410.120(61)(a) and 3410.127 (605) and (606); amends § 3410.121 (11)(b) and (45)(a) and (b), § 3410.131 (62), and repeals § 3410.122 (41) of prior code, traffic control (10.12, 10.20, 10.24, 10.34)
C-5594	Amends Part 10 of official Use District Map (Special)
C-5595	Amends Part 2 (§§ 5220, 5220.1—5220.11) of prior code Art. V Ch. 2, rubbish disposal (8.60)
C-5596	Amends Part 11 of official Use District Map (Special)
C-5597	Amends § 2399.2 (a) and repeals (c) and (d) of § 2399.2 of prior code, cultural heritage committee (2.63)
C-5598	Adds § 8100.101 (e) and amends § 8100.101 (d) of prior code, including an amendment of UBO Appx. Ch. 7 § 712 (c), building code (15.24)
C-5599	Budget for 1980-1981 (Special)

Ordinance Number	Disposition
C-5600	Adds §§ 7310.13, 7310.14 and 7310.15 to prior code, Claremont Avenue boat launching ramp (10.30)
C-5601	Amends prior code §§ 7220.34, 7220.48, 7220.49 and 7220.64, Marina Basin construction and mooring fees (Repealed by C-5625)
C-5602	Amends prior code § 7480.1, golf course fees (16.28)
C-5603	Salaries for City Council members; repeals Ord. C-5505(Repealed by C-5729)
C-5604	Transfers to Board of Harbor Commissioners the administration, possession and control of Gas Plant Site No. 1 as a trust asset (Special)
C-5605	Conveys to Board of Harbor Commissioners the control, supervision and administration of Queen Mary Energy Plant (Special)
C-5606	Designates, creates and consolidates departments, bureaus and divisions of the City government; repeals Ord. C-5506 (Repealed by C-5728)
C-5607	Amends Rule 6 of prior code § 2212, City Council rules (2.03)
C-5608	Amends paragraph 2 of § 2, (a) of Subarea 5, (e) of Subarea 7 and adds paragraph 3 of § 3 of Ord. C-5562, Downtown Shoreline and Ocean Boulevard planned developments (Special)
C-5609	Amends portions of §§ 2 and 3 of Ord. C-5561, 62nd Place on the Peninsula and Long Beach Marina planned developments (Special)
C-5610	Adds language to § 2 of Ord. C-5563, Belmont Pier planned development (Special)
C-5611	Adds Ch. 2, Coastal Zone Development (Part 1, § 9200, 9200.1—9220.9 on housing replacement) to prior code Art. IX, zoning (Title 21)
C-5612	Adds Part 2b (9210 on park dedication policy) to prior code Art. IX Ch. 2, coastal zone development (Title 21)
C-5613	Adds § 3581 to prior code, fingerprinting fees (2.15)
C-5614	Amends Parts 22 and 23 of official Use District Map (Special)
C-5615	Amends §§ 2.09, 4.04, 4.11 and 5.03 of Ord. C-3548, personnel (Not codified)
C-5616	Adds language to § 9120.18 (b) and amends § 91201 (b), 91203 (a), 9120.4 and 9120.9 (c)(4)(O)(1) of prior code, zoning (Title 21)
C-5617	Dedicates certain parks and beaches in Coastal Zone in perpetuity for public use (Special)
C-5618	Repeals Art. II Ch. 7 (§§ 2750—2752 inclusive) of prior code and adds new Part 5 (§§ 2750, 2750.1—2750.4) to Art. II Ch. 7, revenue bonds (3.52)
C-5619	Adds Ch. 9 (§ 2900) to prior code Art. II, private work or services contracts (2.84)
C-5620	Adds §§ 3410.122 (46)—(52), 3410.123 (15), 3410.127 (607), (608) and 3410.134 (127), (128) to prior code, traffic control (10.20, 10.24, 10.34)
C-5621	Amends Part 17 of official Use District Map and establishes Long Beach Business Center Planned Development District (Special)
C-5622	Amends Part 10 of official Use District Map (Special)

Ordinance Number	Disposition
C-5623	Amends Part 10 of official Use District Map (Special)
C-5624	Repeals Art. VII Ch. 3 Part 1 (§§ 7300.1—7300.17 inclusive) of prior code and adds new Part 1 (§§ 7300, 7300.1—7300.6) to Art. VII Ch. 3, public parks and beaches (9.20, 16.16)
C-5625	Repeals prior code Art. VII Ch. 2 Parts 1—3 (§§ 7210—7210.5, 7220.1—7220.71 and 7230—7230.62 respectively) and adds new Parts 1—3 (§§ 7210—7210.5, 7220—7228.2 and 7230—7234.1 respectively) to prior code Art. VII Ch. 2, and repeals §§ 7310.13, 7310.14 and 7310.15, piers, marinas and Pacific Ocean areas within the City limits (16.04, 16.08, 16.12)
C-5626	Sets out provisions applicable to variances from standards established for certain planned developments in coastal zone (Special)
C-5627	Amends prior code § 7480.1, golf course fees (16.28)
C-5628	Adds (b) to prior code § 2900, private work or services contracts (2.84)
C-5629	Amends Rule 4(a) of § 2212, City Council rules (2.03)
C-5630	Amends Part 9 of official Use District Map (Special)
C-5631	Adds § 3410.122 (53) and (54) to prior code, traffic control (Repealed by C-7469)
C-5632	Adds §§ 3410.122 (55), 3410.123 (16) and (17), 3410.127 (609) and 3410.131 (207)—(210) to prior code, traffic control (10.20, 10.24, 10.34)
C-5633	Amends prior code § 3100.100, adopts 1979 Edition of Uniform Fire code with changes and amendments (18.48)
C-5634	Prohibits building activities in certain area for six months from September 23, 1980 (Special)
C-5635	Adds § 5610.59, animal control fee refunds (6.16)
C-5636	Adds § 9120.9 (b)(1)(F)—(H) and (b)(2)(M); adds language to § 9120.18 (b), and amends § 9120.9 (b) Table 9.1, 9120.10 (b), (c)(1) Table 10.2 and (c)(8)(B) of prior code, zoning (Title 21)
C-5637	Amends Parts 1, 2, 3, 8 and 9 of official Use District Map (Special)
C-5638	Adds §§ 3410.122 (56), 3410.125 (35)—(37), 3410.127 (610) and (611), 3410.131 (211) and 3410.132 (a)(11) and (12); amends § 3410.125 (4), (7), (12)—(14), (16), (17), (20), (21), (25), (27) and (30); repeals § 3410.125 (1), (3), (5), (8)—(10), (28) and (31) of prior code, traffic control (10.20, 10.24, 10.34, 10.40)
C-5639	Amends prior code § 9120.14(a)(5)(A), zoning (Title 21)
C-5640	Adds § 6100.70 to prior code, business licenses for apartment houses (Title 5)
C-5641	Amends prior code § 3410.702, traffic control (10.36)
C-5642	Prohibits permit issuance for fortune telling business for ninety days from October 14, 1980 (Special)
C-5643	Amends Part 10 of official Use District Map (Special)
C-5644	Amends prior code § 7461.4, gas service termination (15.40)
C-5645	Amends prior code §§ 5610.14—5610.17, 5610.36, 5610.42, 5610.45, 5610.46 and 5610.54, animal control fees and charges (6.04, 6.08, 6.12)

Ordinance Number	Disposition
C-5646	Amends Part 9 of official Use District Map (Special)
C-5647	Designates Long Beach Community Hospital as Historical Landmark (16.52)
C-5648	Designates Scottish Rite Cathedral as Historical Landmark (16.52)
C-5649	Designates Insurance Exchange Building as Historical Landmark (16.52)
C-5650	Adds §§ 3410.127 (612) and 3410.134 (129) to and repeals § 3410.136 (5) of prior code, traffic control (10.20, 10.24)
C-5651	Amends Part 12 of official Use District Map (Special)
C-5652	Designates Recreation Park Golf Course Clubhouse as Historical Landmark (16.52)
C-5653	Designates Bembridge House as Historical Landmark (16.52)
C-5654	Amends Parts 8, 9, 11, 14, 15, 17, 21—23 and 28—30 of official Use District Map (Special)
C-5655	Adds §§ 3.01A, 3.03A and 3.06A to and amends §§ 2.02, 2.07, 2.12, 2.13, 3.01, 3.03 and 3.05—3.07 of Ord. C-3548, personnel (Not codified)
C-5656	Amends prior code § 7210.4, hours for Belmont Pier (16.04)
C-5657	Adds § 7310.13 to prior code, parking at Belmont Pier - Plaza lot (10.30)
C-5658	Amends §§ 3410.403(r)—(t) and 3410.503(b)—(d) of prior code, traffic code (10.52, 10.54)
C-5659	Amends Part 11 of official Use District Map (Special)
C-5660	Adds §§ 3410.122(57)—(64), 3410.123(18), 3410.127(613), 3410.132(a)(13) and (b)(28) to and repeals § 3410.122(19) of prior code, traffic control (10.20, 10.24, 10.34)
C-5661	Amends prior code § 7580.48, engineering improvement plan processing (14.08)
C-5662	Amends §§ 2.02, 2.09, 2.12, 3.01, 3.03 and 3.06 of and repeals §§ 3.01A, 3.03A and 3.06A of Ord. C-3548, personnel (Not codified)
C-5663	Adds (c) to prior code § 3100.100, fire safety procedures (18.48)
C-5664	Adds (g) to prior code § 6112, business licenses (Title 5)
C-5665	Amends prior code § 7461, gas rates (15.36)
C-5666	Amends Ord. C-5561, Long Beach Marina planned development (Special)
C-5667	Amends portion of Ord. C-5562, Subarea 6 of Downtown Shoreline Planned Development District (Special)
C-5668	Amends Part 5 of official Use District Map (Special)
C-5669	Adds Ch. 6A (§§ 2670, 2670.1—2670.15) to prior code Art. II, annual budget procedure (3.04)
C-5670	Amends § 2 of Ord. C-5106, disestablishes portion of parking and business improvement area (Special)
C-5671	Adds §§ 4180.9, 4180.9.1, 4180.9.2 and 4180.9.3 to prior code, exclusion of minors from places selling drug paraphernalia (9.54)
C-5672	Amends Part 29 of official Use District Map (Special)

Ordinance Number	Disposition
C-5673	Repeals Ords. C-1874, C-2629, C-2772, C-3326 and C-3470 on setbacks and makes zoning regulations applicable to such property (Special)
C-5674	Adds §§ 3410.122(65) and (66) and 3410.128(73) to prior code, traffic control (10.14, 10.34)
C-5675	Approves Board of Water Commissioners Res. 879, water service charges (Special)
C-5676	Adds Part 3A (§ 2335) to prior code Art. II Ch. 3, Recreation Commission (2.54)
C-5677	Amends (7) and (8) of subsection (a) of Subarea II provisions of Ord. C-5562, Downtown Shoreline Planned Development District (Special)
C-5678	Adds § 3410.403(w) to and amends § 3410.206(a) of prior code, skateboard restrictions (10.48, 10.54)
C-5679	Amends Part 15 of official Use District Map and establishes DeForest Avenue specific development plan (Special)
C-5680	Adds §§ 9120.12(b)(2)(E) and 9120.14(d) to and amends §§ 9120.3(e)(1), 9120.9(c)(4), (c)(9) and (c)(9)(B); 9120.10(c)(8) and (c)(8)(B); 9120.11(c)(12) and (c)(12)(B); 9120.14(b)(1) and 9120.18(b) of prior code, zoning (Title 21)
C-5681	Adds §§ 7561 and 7561.1—7561.3 adopting Federal regulations on transportation of hazardous liquids by pipeline to prior code Art. VII Ch. 5 Part 6, pipelines (12.56)
C-5682	Amends Parts 4, 5, 10 and 11 of official Use District Map (Special)
C-5683	Amends Parts 15, 16, 22 and 3 of official Use District Map (Special)
C-5684	Repeals Setback Ords. C-2141, C-2142, C-2143 and C-2242 and makes zoning regulations applicable to such properties (Special)
C-5685	Amends Part 10 of official Use District Map (Special)
C-5686	Amends Parts 3 and 9 of official Use District Map (Special)
C-5687	Adds (5) to § 9120.6(b) and amends § 9120.8(c)(4) (A)(3) of prior code, zoning (Title 21)
C-5688	Amends Part 11 of official Use District Map (Title 21)
C-5689	Adds Part 9 (§§ 6290, 6290.1—6290.12) to prior code Art. VI Div. 1 Ch. 2, permits for parades, special events and filming activities; amends § 3410.20 and repeals §§ 6230.80 and 6230.81, street use regulations (Title 5, 10.08)
C-5690	Amends Part 6 (§§ 7560, 7560.1—7560.23) of prior code Art. VII Ch. 5, pipelines and utilities (15.44)
C-5691	Amends entire prior code by changing all references to "bureau of franchises," "bureau of franchises and utilities," "bureau of franchises and public utilities" or "bureau" to be "City Council"; and by changing all references to "secretary of the bureau," "secretary of the bureau of franchises and public utilities," "chief engineer of the bureau" or "chief engineer-secretary" to be "City Manager or his designee"; and repeals prior code Part 1 (§§ 2310—2310.6 inclusive) of Art. II Ch. 3, Bureau of Franchises (2.75, Title 5, 10.26, 10.60, 14.08, 14.16, 15.48)
C-5692	Amends Part 29 of official Use District Map (Special)

Ordinance Number	Disposition
C-5693	Adds §§ 3410.131(212) and 3410.132(b)(29)—(31) to and amends § 3410.132(b)(25) of prior code, traffic code (10.24)
C-5694	Amends § 1(22) of Ord. C-5606, Oil Properties Department (Repealed by C-5728)
C-5695	Adds § 3410.122(67)—(69) to and repeals § 3410.122(8) of prior code, traffic control (Repealed by C-7469)
C-5696	Amends §§ 8120.100, 8120.142 and 8120.143 of prior code, plumbing regulations (18.40, 18.44)
C-5697	Adds §§ 8100.107 and 8100.306(f); amends §§ 8100.101 (adopting 1970 Edition of Uniform Building Code, Uniform Building Code Standards and the Uniform Housing Code with various amendments and changes), 8100.102—8100.106, 8100.202(a), (d) and (e), 8100.206—8100.208, 8100.210, 8100.212, 8100.301, 8100.308(b), 8100.309, 8100.310(a), 8100.311(a), 8100.312(e), 8100.402—8100.407, 8100.409, 8100.413—8100.417, 8100.420 and 8100.422—8100.424; and repeals §§ 8100.1601—8100.1606 of prior code, building and housing regulations (18.04, 18.08, 18.12, 18.16, 18.20, 18.24)
C-5698	Amends Part 9 of official Use District Map (Special)
C-5699	Amends Part 10 of official Use District Map (Special)
C-5700	Amends Rule 1 (g), Rule 5 (b) and Rule 9 (b); deletes Rule 2 of prior code § 2212, City Council rules (2.03)
C-5701	Amends prior code §§ 7580.7 and 7580.10, street surface improvements (14.08)
C-5702	Adds §§ 3410.122 (70) and 3410.127 (614) to and repeals §§ 3410.122 (62) of prior code, traffic control (10.20, 10.34)
C-5703	Dissolves Queen Mary Fund established by Ord. C-5395 and transfers all moneys to Harbor Revenue Fund (Special)
C-5704	Amends prior code § 4220.3, fortune telling license (Title 5)
C-5705	Adds Part 1(§§ 2310, 2310.1—2310.10) to prior code Art. 2 Ch. 3, uniform regulations for advisory boards, commissions and committees (2.18)
C-5706	Amends Part 9 of official Use District Map (Special)
C-5707	Amends Part 9 of official Use District Map (Special)
C-5708	Amends Part 9 of official Use District Map (Special)
C-5709	Amends Parts 2, 3, 7, 8, 10 and 12 of prior code Chapter 3, Article II, Municipal Golf Commission, Park Commission, Airport Advisory Commission, Armed Services Commission, Senior Citizen Advisory Commission and Citizen's Advisory Commission on the Handicapped; amends prior code §§ 5110.1, 8100.204 (a), 8120.134 and 8130.214 (a) and (b), building and construction; repeals Parts 4, 9 and 11 of prior code Ch. 3 of Article II, retitles and renumbers Part 15 of Ch. 3 of Article II, Metropolitan Water District representation; repeals Ords. C-1897 and C-2157 (2.21, 2.24, 2.27, 2.30, 2.33, 2.42, 2.57, 18.20, 18.32, 18.44)
C-5710	Adds § 4150.6 to prior code, beer and wine in certain public facilities (9.22)

Ordinance Number	Disposition
C-5711	Amends prior code §§ 3410.102, 3410.122, 3410.127, 3410.128 and 3410.138, traffic control (10.08, 10.14, 10.20, 10.26, 10.34)
C-5712	Repeals and replaces Part 2 of prior code Chapter 3, Article VII, beach area parking lots (10.30)
C-5713	Amends Division I of Part 6 of prior code Chapter 4, Article VII, gas regulations (15.36, 15.40)
C-5714	Amends prior code § 2480.6.1 (a), senior citizen utility tax exemption (3.68)
C-5715	Amends §§ 6280.4.15 and 6280.4.16 to prior code and amends prior code §§ 6280.1, 6280.3, 6280.4.1, 6280.4.8, 6280.4.9, 6280.4.11 and 6281.2, towing operations (Title 5)
C-5716	Amends prior code § 9120.8, zoning regulations (Title 21)
C-5717	Amends prior code § 7221.4, powers of the Bureau of Marinas and Beaches (16.08)
C-5718	Adds subsection (c) to prior code § 2900, private work contracts (2.84)
C-5719	Amends prior code §§ 3410.120 and 3410.121; adds (62) through (65) to § 3410.120, (73) to § 3410.122 and (617) through (619) to § 3410.127; repeals 942 of § 3410.122, traffic control (10.12, 10.20, 10.34)
C-5720	Amends prior code § 2100, City office business hours (2.06)
C-5721	Amends prior code § 5610.18, animal control (6.08)
C-5722	Amends Ch. C-5666, Long Beach Marina planned development (Special)
C-5723	Amends Part 10 of official Use District Map (Special)
C-5724	Adds §§ 7421—7421.19 to prior code, aircraft noise control (Repealed by C-6278)
C-5725	Adds subsection (h) to prior code § 6113, amusement services license (Title 5)
C-5726	Designates Cherry Avenue Lifeguard Station as an historical landmark (16.52)
C-5727	Budget for 1981-1982 (Special)
C-5728	Enumerates City departments and creates bureaus and divisions thereof, repeals Ords. C-5606 and C-5694 (Repealed by C-6496)
C-5729	Salaries for City Council members; repeals Ord. C-5603 (Repealed by C-5842)
C-5730	Adds § 2213 to prior code, Mayor's expenses (2.06)
C-5731	Adds § 3530 to prior code, police animals (6.28)
C-5732	Adds (74)—(79) to prior code § 3410.122, adds (620) to § 3410.127 and (2) to § 3410.703, traffic control (10.12, 10.20, 10.28)
C-5733	Amends Part 30 of official Use District Map (Special)
C-5734	Amends prior code § 9110.7, condominium conversion (20.32)
C-5735	Amends Table 9.9 of prior code § 9120.9 (c)6D(5) and Table 11.1 of § 9120.11 (c) 7A(2), zoning regulations (Title 21)
C-5736	Amends §§ 1.19, 2.10, 3.06, 4.09, 4.10 and 5.03 of Ord. C-3548, personnel (Not codified)
C-5737	Amends prior code §§ 9120.8, 9120.10 and 9120.18, zoning regulations (Title 21)
C-5738	Amends Part 28 of official Use District Map (Special)

Ordinance Number	Disposition
C-5739	Adds subsections (80) and (81) to prior code § 3410.122, adds (621)—(625) to § 3410.127, and adds (79) and (80) to § 3410.138; repeals (70) of § 3410.122 and (7), (14), (32) and (4) of § 3410.136, traffic control (10.20, 10.34)
C-5740	Adds I to prior code § 9120.9 (b)1; amends Table 9.1 of § 9120.9 (b) and 2, 4, of § 2120.11 (b), zoning regulations (Title 21)
C-5741	Amends Part 11 of official Use District Map (Special)
C-5742	Amends Part 15 of official Use District Map (Special)
C-5743	Amends Part 23 of official Use District Map (Special)
C-5744	Adds § 7422—7422.11 to prior code, airport flight allocations (Repealed by C-6278)
C-5745	Amends prior code § 2730, City purchasing agent authority (2.84)
C-5746	Amends Part 5 of official Use District Map (Special)
C-5747	Industrial development authority (2.46)
C-5748	Amends prior code § 3410.125, traffic control; repeals §§ 1 and 3 of Ord. C-5638 (10.40)
C-5749	Adds § 7421.20 to prior code, noise control specialists (Repealed by C-6278)
C-5750	Amends Part 11 of official Use District Map (Special)
C-5751	Hazardous waste storage prohibition (Not codified)
C-5752	Adds subsection (e) to § 2900, private work contracts (2.84)
C-5753	Adds §§ 2711 and 2711.1 to prior code, special claims procedures (2.83)
C-5754	Amends Ord. C-5562, Belmont Pier planned development (Special)
C-5755	Amends prior code §§ 5620(a), 5620.1 and 5620.2, fowl and rabbits; repeals § 5620.3 (6.20)
C-5756	Amends Part 10 of official Use District Map (Special)
C-5757	Adds subsections (82)—(85) to prior code § 3410.122, traffic control (Repealed by C-7469)
C-5758	Adds subsection (d) to prior code § 2900, private work contracts (2.84)
C-5759	Adds paragraph 10 to prior code § 9120.9 (c); amends § 9120.18 (b); repeals item 11 of § 9120.9 (b)2A, paragraph 3 of § 9120.9 (b) and subparagraph D of § 9120.9 (c)4, zoning regulations (Title 21)
C-5760	Amends item (3) of prior code § 9120.10 (c)8B, zoning regulations (Title 21)
C-5761	Amends Table 10.2 of prior code § 9120.10 (c)1, zoning regulations (Title 21)
C-5762	Amends Part 17 of official Use District Map; establishes Long Beach Airport Business Park Planned Development District (Special)
C-5763	Amends Part 11 of official Use District Map (Special)
C-5764	Temporary authority for City Librarian to contract (Not codified)
C-5765	Adds § 7496—7496.5 to prior code, public works facilities use (9.38)
C-5766	Amends Part 4 of official Use District Map (Special)

Ordinance Number	Disposition
C-5767	Adds subsection (626) to prior code § 3410.127 and (213) to § 3410.131, traffic control; repeals subsection (37) of § 3410.136 (10.20, 10.24)
C-5768	Amends Ord. C-5728, public works department (Repealed by C-6496)
C-5769	Adds subsections (86)—(89) to prior code § 3410.122, adds (627)—(630) to § 3410.127, and (74) to § 3410.128 (a), traffic control (10.14, 10.20, 10.34)
C-5770	Amends Part 6 of official Use District Map (Special)
C-5771	Industrial revenue bond (Repealed by C-5971)
C-5772	Amends Part 12 of official Use District Map (Special)
C-5773	Adds subsections (633)—(635) to prior code § 3410.127, adds (37) to § 3410.132 (c) and (130) to § 3410.134; amends (117) of § 3410.131, traffic control; repeals (42) and (52) of § 3410.136 (10.20, 10.24)
C-5774	Adds subsections (90)—(94) to prior code § 3410.122, adds (631) and (632) to § 3410.127, (214) and (215) to § 3410.131, (32)—(36) to § 3410.132 (b) and (25) to § 3410.137; amends subsection (6) of § 3410.132(b), traffic control; repeals subsection (61) of § 3410.131 and (29) of § 3410.136 (10.20, 10.24, 10.34, 10.58)
C-5775	Amends Part 9 of official Use District Map (Special)
C-5776	Amends prior code § 1700, district boundaries (1.20)
C-5777	Amends Ord. C-5562, Downtown Shoreline and Ocean Boulevard planned developments (Special)
C-5778	Amends Part 11 of official Use District Map (Special)
C-5779	Repeals Ord. C-689 (Repealer)
C-5780	Temporary prohibition on new development in designated areas (Not codified)
C-5781	Amends Parts 5 and 11 of official Use District Map (Special)
C-5782	Adds prior code § 3410.68, subsections (e) and (f) to § 3410.64, and (216)—(220) to § 3410.131, traffic control (10.24, 10.38)
C-5783	Adds § 6230.8 to prior code, live musical events (Title 5)
C-5784	Amends prior code § 3410.10, painting on sidewalk, house numbers on curbs (14.04, 14.36)
C-5785	Amends Part 9 of official Use District Map (Special)
C-5786	Amends prior code § 7532(b)1, sidewalk sales (14.04)
C-5787	Designates the William Benjamin Dearborn Simmons Tracker Pipe Organ and the Dr. Rowan Building as historical landmarks (16.52)
C-5788	Amends Part 9 of official Use District Map (Special)
C-5789	Amends Parts 8, 9 and 14 of official Use District Map (Special)
C-5790	Adds subsections (95)—(100) to prior code § 3410.122, adds (19) to § 3410.123, (636)—(638) to § 3410.127, (221) to § 3410.131, and (81) and (82) to § 3410.138, traffic control; repeals subsections (26), (47) and (49) of § 3410.136 (10.08, 10.20, 10.24, 10.34)
C-5791	Amends §§ 1.09 and 4.03 of Ord. C-5791, personnel (Not codified)
C-5792	Adds § 1312 to prior code, bureau of franchises (1.08)
C-5793	Amends Part 10 of official Use District Map (Special)

Ordinance Number	Disposition
C-5794	Adds §§ 6212.1—6212.4 to prior code; amends § 6212, blood pressure machines (Title 5)
C-5795	Adds subsection (639) to prior code § 3410.127, adds (75) to § 3410.128 (a), (222) and (223) to § 3410.131, and (32) to § 3410.132(c), traffic control; repeals subsection (61) of § 3410.122 (10.14, 10.20, 10.24)
C-5796	Amends Part 11 of official Use District Map (Special)
C-5797	Temporary prohibition on bingo permit applications (Repealed by C-5902)
C-5798	Adds § 2315—2315.35 to prior code, cable communication franchises (Repealed by C-6175)
C-5799	Amends Part 9 of official Use District Map (Special)
C-5800	Adds § 5220.12 to prior code, keeping sidewalks clean (8.60)
C-5801	Temporary prohibition on new development in designated areas (Repealed by C-5849)
C-5802	Adds § 2336 to prior code, recreation commission authority (2.54)
C-5803	Amends prior code § 9120.4 (f)(4), 9120.10 and 9120.18, zoning regulations (Title 21)
C-5804	Amends Part 10 of official Use District Map (Special)
C-5805	Amends Part 15 of official Use District Map (Special)
C-5806	Adds subsections (38)—.(41) to prior code § 3410.125, traffic control (10.40)
C-5807	Amends prior code § 7440.6, cemetery fees (16.48)
C-5808	Amends prior code § 5610.43, impounded dogs (6.04)
C-5809	Adds subsection (101) to prior code § 3410.122 and adds (640) and (641) to § 3410.127; amends (f) of § 3410.64 and (474) of § 3410.127; repeals (77) and (92) of § 3410.122, traffic control (10.20, 10.34, 10.38)
C-5810	Amends subsections (h) and (i) of prior code § 1700, district boundaries (1.20)
C-5811	Amends prior code §§ 6100.2 and 6100.7, business licenses (Title 5)
C-5812	Amends Part 15 of official Use District Map (Special)
C-5813	Repeals established setbacks, SB-396-81 (Repealer)
C-5814	Amends prior code §§ 2399.4, 2399.5, 2399.6 and 2399.7, cultural heritage committee (2.63)
C-5815	Adds subsections (224) to prior code § 3410.131 and subsections (37), (38) and (39) to prior code § 3410.132 (b), parking restrictions (10.24)
C-5816	Amends portion of Ord. C-5562, Downtown Shoreline and Ocean Boulevard planned development plans (Special)
C-5817	Repeals Ord. C-2568, established setbacks, SB-389-81 (Repealer)
C-5818	Amends Part 14 of official Use District Map (Special)
C-5819	Adds subsections (102), (103) and (104) to prior code § 3410.122 and subsection (49) to prior code § 3410.133, parking restrictions (10.24, 10.34)
C-5820	Amends Parts 10 and 11 of official Use District Map (Special)
C-5821	Amends portion of Ord. C-5562, Downtown Shoreline and Ocean Boulevard planned development plans (Special)

Ordinance Number	Disposition
C-5822	Amends subsections (16) and (27) and repeals subsections (13) and (36) of prior code § 3410.125, truck routes (10.40)
C-5823	Amends prior code § 9200.8, zoning (Title 21)
C-5824	Amends portion of Ord. C-5563, Belmont Pier planned development district (Special)
C-5825	Adds subsections (642), (643) and (644) to prior code § 3410.127, special stops (10.20)
C-5826	Multi-family rental housing revenue bond law (Special)
C-5827	Adds subsection J to prior code § 9120.9 (b)1, zoning (Title 21)
C-5828	Amends Part 28 of official Use District Map (Special)
C-5829	Adds subsections (105) through (109) to prior code § 3410.122, adds subsections (645) and (646) to prior code § 3410.127; repeals subsections (36) and (44) of prior code § 34.10.136, traffic control (10.20, 10.34)
C-5830	Adds subsection N to prior code § 9120.9 (b)2 and amends line 13 under "Retail Sales Uses" of Table 9.1 of prior code § 9120.9 (b), zoning (Title 21)
C-5831	Adds § 1.04.010 through 1.04.150, adoption of Code (1.04)
C-5832	Adds § 14.04.070, sidewalk entertainment permits (14.04)
C-5833	Amends Part 9 of official Use District Map (Special)
C-5834	Amends subsection A of § 8.76.010, unfinished buildings (8.76)
C-5835	1982-1983 budget (Special)
C-5836	Amends § 1.04.130, repeals Ord. C-3600 (1.04)
C-5837	Repeals Ords. C-3885, C-4194, C-4299, C-4437, C-4456, C-4457, C-4498, C-4505, C-4626 and C-4923, setbacks on private property (Repealer)
C-5838	Repeals 21.42, Fence Overlay District (Repealer)
C-5839	Amends Part 23 of official Use District Map (Special)
C-5840	Amends Part 19 of official Use District Map (Special)
C-5841	Amends 2.09, Departmental Organization (Repealed by C-6496)
C-5842	Salaries for City Council members; repeals Ord. C-5729(Special)
C-5843	Adds subsections I, J, K and L to § 5.52.010 and adds § 5.52.025; amends §§ 5.52.020 and 5.52.030, pawnbrokers and secondhand dealers (Title 5)
C-5844	Adds subsection 79 to § 10.08.120, subsections 72 through 74 to § 10.14.020, subsections 645 through 700 to § 10.20.070, and 104 through 107 to § 10.34.040; amends subsection 15 of § 10.08.120, traffic control (10.08, 10.14, 10.20, 10.34)
C-5845	Repeals Ords. C-1734, C-1890, C-1891 and C-2435, setbacks on certain streets (Repealer)
C-5846	Health facility revenue bond law (Repealed by C-5971)
C-5847	Designates Carroll Park Historic Landmark District (Not codified)
C-5848	Amends Parts 11 and 12 of the official Use District Map (Special)
C-5849	Repeals Ord. C-5801, zoning moratorium (Repealer)
C-5850	Amends § 1.24.040, rebuttal arguments for ballot measures (1.24)
C-5851	Adds Ch. 1.25, Nominating Petitions (1.25)

Ordinance Number	Disposition
C-5852	Amends § 3.16.010 and 3.16.020, Gas Revolving Fund (3.16)
C-5853	Amends Parts 24 and 25 of official Use District Map (Special)
C-5854	Amends Part 12 of official Use District Map (Special)
C-5855	Amends Parts 12 and 13 of official Use District Map (Special)
C-5856	Amends Part 13 of official Use District Map (Special)
C-5857	Amends Part 18 of official Use District Map (Special)
C-5858	Amends Parts 18 and 19 of official Use District Map (Special)
C-5859	Repeals Ord. C-4924, street set-back (Repealer)
C-5860	Amends Part 19 of official Use District Map (Special)
C-5861	Amends Part 19 of official Use District Map (Special)
C-5862	Amends Parts 19, 20 and 26 of official Use District Map (Special)
C-5863	Amends Parts 12 and 13 of official Use District Map (Special)
C-5864	Amends Ord. C-4816, CATV franchise grant; repeals Ord. C-4609 (Special)
C-5865	Amends Parts 9 and 15 of official Use District Map (Special)
C-5866	Amends Part 15 of official Use District Map (Special)
C-5867	Temporary prohibition on new development in certain area (Special)
C-5868	Amends § 5.18.130B, bingo (Title 5)
C-5869	Designates Bluff Park Historic Landmark District (Not codified)
C-5870	Temporary prohibition on placement of flagpoles exceeding certain heights (Repealed by C-5919)
C-5871	Amends Parts 18, 19, 25 and 26 of official Use District Map (Special)
C-5872	Amends Parts 16 of official Use District Map (Special)
C-5873	Amends § 3.68.150, utility users tax (3.68)
C-5874	Adds subsection 80 to § 10.08.120, subsections 700 and 701 to § 10.20.070, and subsections 108 through 112 to § 10.34.040; amends subsections 10a, 27a, 27h, 40c, 52a and 52b of § 10.12.010, and 8a, 56d and 56e of § 10.12.020, traffic control (10.08, 10.12, 10.20, 10.34)
C-5875	Amends Parts 11 and 12 of official Use District Map (Special)
C-5876	Repeals Ords. C-965, C-1117, C-2285 and C-3414, setbacks on certain streets (Repealer)
C-5877	Amends § 1.04.130, repeals Ord. C-3600; repeals § 1.04.040 (1.04)
C-5878	Adds Ch. 9.25, Public Excretion (9.25)
C-5879	Amends Part 17 of official Use District Map (Special)
C-5880	Amends Part 17 of official Use District Map (Special)
C-5881	Designates Heartwell/Lowe House as an historic landmarks (Repealed by C-5904)
C-5882	Adds § 9.30.060, lookouts for illegal acts (9.30)
C-5883	Amends Parts 4 and 10 of official Use District Map (Special)
C-5884	Amends Part 9 of official Use District Map (Special)
C-5885	Temporary authorization of a farmer's market (Special)
C-5886	Adds subsections 113—119 to § 10.34.040; amends subsection 43 of § 10.14.020, traffic control (10.14, 10.34)

Ordinance Number	Disposition
C-5887	Amends § 15.44.100A, pipeline permit fees (15.44)
C-5888	Amends § 2.84.050E, rehabilitation treatment services contracts (2.84)
C-5889	Adds subsections 120 through 126 to § 10.34.040, traffic control (Repealed by C-7469)
C-5890	Amends subsections (i), (k) and (m) of § 1-3 of Ord. C-5826, multifamily rental housing revenue bond law (Special)
C-5891	Adds Ch. 8.26, Industrial Hygiene Services (8.26)
C-5892	Amends subsections H and I of § 1.20.010, council districts (1.20)
C-5893	Amends § 12.04.310, oil operating areas (12.04)
C-5894	Amends Part 28 of official Use District Map (Special)
C-5895	Adds subsections 127 and 128 to § 10.34.040, traffic control (Repealed by C-7469)
C-5896	Amends § 16.32.020D, 16.32.030, 16.32.040 and 16.32.060, convention center (16.32)
C-5897	Amends public employees' retirement system contract (Repealed by C-5905)
C-5898	Adds § 16.16.090, glass containers on beaches (16.16)
C-5899	Amends Ord. C-5563, amendment to official Use District Map (Special)
C-5900	Adds subsections 74, 75 and 76 to § 10.14.020A, and subsections 701 and 702 to § 10.20.070; repeals § 3 of Ord. C-5844 and § 8 of Ord. C-5874, traffic control (10.14, 10.20)
C-5901	Amends subsection B of § 21.45.180, zoning (Title 21)
C-5902	Amends §§ 5180.30 and 5180.70, bingo, repeals Ord C-5797 (Title 5)

Ordinance Number	Disposition
C-5903	Adds §§ 21.06.225, 21.06.265, 21.06.695, 21.06.835, 21.06.1565, 21.06.1735, 21.06.1755, 21.06.2615, 21.06.2635, 21.12.040B (14), 21.12.540, 21.18.050, 21.18.600, 21.18.610, 21.21.020Z, 21.21.500, 21.21.510, 21.24.135, 21.24.191 through 21.24.198, 21.60.050, 21.60.060, 21.60.070 and 21.75.080; amends §§ 21.03.060B, 21.03.070, 2.106.290, 21.06.530, 21.06.540, 21.06.940, 21.06.1000, 21.06.1120, 21.06.1130, 21.06.1170, 21.06.1230, 21.06.1280, 21.06.1310, 21.06.1430, 21.06.1610, 21.06.2250, 21.06.2540, 21.09.030, 21.09.070, 21.12.020B, 21.12.040B (2) and (6), 21.12.060, 21.12.160, 21.12.170, 21.12.180, 21.12.185, 21.12.190, 21.12.240, 21.12.250, 21.12.280B, 21.12.330, 21.12.420, 21.12.440, 21.12.480, 21.12.500, 21.12.510, 21.12.520, 21.15.080, 21.18.020, 21.18.040A, 21.18.080, 21.18.150, 21.18.180, 21.18.220, 21.18.260, 21.18.290 (C), (D), (E) and (F), 21.18.300, 21.18.310, 21.18.330, 21.18.380, 21.18.430, 21.18.440, 21.18.490, 21.18.560, 21.18.590, 21.21.020, 21.21.030, 21.21.040, 21.21.120, 21.21.130, 21.21.150, 21.21.160, 21.21.190, 21.21.200, 21.21.210, 21.21.280, 21.21.310, 21.21.330, 21.21.340, 21.21.410, 21.21.470, 21.24.020, 21.24.040, 21.24.100, 21.24.130, 21.24.160, 21.24.220, 21.24.230, 21.24.260, 21.24.320, 21.45.180 (M), 21.54.090, 21.57.090, 21.60.020, 21.60.030, 21.60.040, 21.63.060, 21.72.020(C), (D) and (E), 21.75.030, 21.75.060, 21.81.140 and 21.87.080, zoning; repeals §§ 21.06.1320, 21.15.090, 21.15.100, 21.15.110, and Ch. 21.39 (Title 21)
C-5904	Adds §§ 16.52.120 and 16.52.130, historic landmarks; repeals Ord. C-5881(16.52)
C-5905	Repeals Ord. C-5897 (Repealer)
C-5906	Amends California Public Employees' Retirement System contract (Special)
C-5907	Adds § 9.30.025, disorderly conduct (9.30)
C-5908	Adds § 9.20.050; public nudity (9.20)
C-5909	Temporary prohibition of off-premises signs (Special)
C-5910	Amends § 5.60.010 and 5.60.120, public dances, pool halls, card rooms and bowling alleys (Title 5)
C-5911	Adds § 10.20.070 (703) and 10.54.040X; amends § 10.48.070A, traffic control (10.20, 10.48, 10.54)
C-5912	Amends § 2 of Ord. C-5296, removal of graffiti (Not codified)
C-5913	Amends § 21.27.010 through 21.27.100, zoning (Title 21)
C-5914	Amends parts 23 and 29 of official Use District Map (Special)
C-5915	Repeals Ords. C-916, C-2341, C-2521, C-3460 and C-4362(Repealer)
C-5916	Amends subsection E of § 15.44.100, pipelines and utilities (15.44)
C-5917	Adds subsections 129 through 134 to § 10.34.040, and subsections 19 and 20 to § 10.34.050, parking (Repealed by C-7469)
C-5918	Adds subsection 215 to § 10.24.020; adds paragraph 77 to subsection B and amends paragraphs 18 and 19 of subsection A of § 10.14.020, traffic control (10.14, 10.24)

Ordinance Number	Disposition
C-5919	Amends §§ 21.12.190, 21.18.070, 21.21.070, 21.24.110, 21.45.040 and 21.45.170I, zoning; repeals Ord. C-5870 (Title 21)
C-5920	Amends part 17 of official Use District Map (Special)
C-5921	Amends § 3.48.010, claims and refunds (3.48)
C-5922	Adds § 5.68.035, 5.68.045 and 5.68.065, tow operations (Title 5)
C-5923	Amends Part 10 of official Use District Map (Special)
C-5924	Amends Part 30 of official Use District Map (Special)
C-5925	Amends Ord. C-5771, industrial revenue bonds (Repealed by C-5971)
C-5926	Amends § 2 of Ord. C-5833, development plan (Special)
C-5927	Amends § 7 of Ord. C-5885, temporary authorization (Special)
C-5928	Amends § 16.52.030, historic landmarks (16.52)
C-5929	Adds subsection 704 to § 10.20.070, subsection 216 to § 10.24.070 and subsections 129 through 141 to § 10.34.040, traffic (10.20, 10.24, 10.34)
C-5930	Adds subsections 705, 706 and 707 to § 10.20.070, stop intersections (10.20)
C-5931	Amends Parts 22 and 28 of official Use District Map (Special)
C-5932	Repeals established setbacks on certain streets (Special)
C-5933	Adds subsection 81 to § 10.08.120; adds subsections 142 and 143 to, and repeals subsections 28 and 54 of § 10.34.040, traffic control (10.08, 10.34)
C-5934	Adds subsections 217 and 218 to § 10.24.070, parking (10.24)
C-5935	Adds § 12.04.285 and Ch. 12.26; amends §§ 12.04.370, 12.32.010 and 21.03.020C, natural gas (Title 21)
C-5936	Amends § 2.81.040, Public Safety Building(2.81)
C-5937	Amends § 2 of Ord. C-5909, temporary prohibition of off-premises signs (Special)
C-5938	Adds § 9.58.010, loitering by minors (9.58)
C-5939	Adds §§ 5.04.025, 21.06.165, 21.06.1935, 21.18.020(17), 21.18.030(J—L), 21.21.020(Z), 21.21.030(H) and (I), and 21.21.090(O) and (P); amends §§ 5.04.020, 5.04.030, 5.16.010, 5.16.020, 5.60.010(B)2, 21.06.170, 21.06.220, 21.18.040(G), and 21.18.290(9), arcades, poolhalls and amusement machines (Title 5, Title 21)
C-5940	Amends official Use District Map (Special)
C-5941	Repeals Ords. C-905, C-1875, C-2971 and C-3958, street setbacks (Repealer)
C-5942	Amends subsection E of § 10.38.090; repeals subsections 27 and 132 of § 10.34.040, traffic control (10.34, 10.38)
C-5943	Adds subsection 41 to § 10.24.110; subsection 123 to § 10.24.120, and subsections 144 through 150 to § 10.34.040, traffic control (10.24, 10.34)
C-5944	Amends § 2 of Ord. C-5296, removal of graffiti (Not codified)
C-5945	Adds § 16.52.140, historic landmark (16.52)
C-5946	Adds § 5.54.060, downtown area vending permits (Title 5)

Ordinance Number	Disposition
C-5947	Amends §§ 18.72.010 and 18.72.020, gas appliances (Repealed by ORD-07-0062)
C-5948	Adds Ch. 16.54, Shoreline Park Recreational Vehicle Area (16.54)
C-5949	Temporary prohibition on painting house numbers on curbs (Repealed by C-5978)
C-5950	Adds subsections 708, 709 and 710 to § 10.20.070, traffic control (10.20)
C-5951	Adds subsection 127 to § 10.24.120 and subsections 148 through 154 to § 10.34.040, traffic control; repeals §§ 2 and 3 of Ord. C-5943 (10.24, 10.34)
C-5952	Adds subsections 711 through 715 to § 10.20.070, traffic control (10.20)
C-5953	Adds subsections 155 through 158 to § 10.34.040, traffic control (Repealed by C-7469)
C-5954	Adds § 5.60.051, pool hall license (Title 5)
C-5955	Adds subsections K, L and M to § 21.18.030, subsections I and J to § 21.21.030, and items P and Q to Table 21-4 of § 21.21.190, zoning; repeals §§ 9, 13 and 14 of Ord. C-5939 (Title 21)
C-5956	Adds §§ 10.30.121, 10.30.122, 10.52.040(G), 10.54.040(Y), 16.08.581, 16.12.151 and 16.12.152; amends §§ 10.30.010, 16.08.340, 16.08.460, 16.08.470, 16.08.540, 16.08.620, 16.08.650(A) and (B)(1), 16.08.660, 16.08.680, 16.08.720(A), 16.08.760(A), (B), (H), and (I), 16.08.780, 16.08.840, 16.08.850(A), 16.08.880, 16.08.900, 16.08.940, 16.08.980, 16.12.080, 16.12.270(B), 16.12.280(B), 16.16.010(A)—(E) and (J), 16.16.020, 16.16.060 and 16.16.070, marinas, public parks and beaches (10.30, 10.52, 10.54, 16.08, 16.12, 16.16)
C-5957	Amends Ch. 21.48, Off-Premises Signs (Title 21)
C-5958	Adds subsections 159 and 160 to § 10.34.040, traffic control; adds Item AA to Table 21-1 of § 21.21.020, zoning; repeals § 2 of Ord. C-5933 and § 12 of Ord. C-5939 (10.34, Title 21)
C-5959	Amends subsection H of § 2.63.060, Cultural Heritage Committee (2.63)
C-5960	Amends subsection 21 of § 10.24.100; adds subsection 40 to § 10.24.080, traffic control (10.24)
C-5961	Amends subsection B of § 2.03.020, Council meetings (2.03)
C-5962	Temporary prohibition on new development in certain area (Not codified)
C-5963	Establishes a parking and business improvement area (Special)
C-5964	Adds § 16.52.150, historic landmarks (16.52)
C-5965	Adds subsections 716 through 721 to § 10.20.070 and subsections 161 through 164 to § 10.34.040, traffic control (10.20, 10.34)

Ordinance Number	Disposition
C-5966	Amends § 2.36.020 and 2.36.060, Economic Development Commission (2.36)
C-5967	Adds Ch. 5.55, Pedicabs (Title 5)
C-5968	1983-1984 budget (Special)
C-5969	Amends Parts 10 and 16 of official Use District Map (Special)
C-5970	Amends Parts 9, 10, 15 and 16 of official Use District Map (Special)
C-5971	Amends Ch. 3.52, Bonds and Public Improvements Financing; repeals Ords. C-5771, C-5846 and C-5925 (3.52)
C-5972	Amends California Public Employees' Retirement System contract (Special)
C-5973	Adds subsection 722 to § 10.20.070, and subsection 128 to § 10.24.120, traffic control (10.20, 10.24)
C-5974	Adds Ch. 14.28, Farmer's Market Permit (Repealed by C-6790)
C-5975	Amends Title 20, Ch. 21.12 and §§ 21.06.1430 and 21.18.180, subdivisions and zoning (20.04, 20.06, 20.08, 20.12, 20.16, 20.20, 20.24, 20.28, 20.32, 20.34, 20.36, 20.40, Title 21)
C-5976	Salaries for City Council members; repeals Ord. C-5842 (Repealed by C-6073)
C-5977	Adds subsection F to, and amends subsection E of, § 16.46.030; amends subsection A of § 16.46.060; adds subsection E to, and amends subsection D of, § 16.46.080, flight allocation system (Repealed by C-6278)
C-5978	Amends § 14.36.020, house numbers on curbs; repeals Ord. C-5949 (14.36)
C-5979	Amends subsection A of § 3.68.080, and subsection B of § 3.68.090, utility users tax (3.68)
C-5980	Amends Part 16 of official Use District Map (Special)
C-5981	Amends Part 8.14 Map (Special)
C-5982	Amends Ch. 2.09, Departmental Organization (Repealed by C-6496)
C-5983	Amends § 2 of Ord. C-5867, temporary prohibition on certain new development (Special)
C-5984	Amends subsection A of § 21.12.020, and amends § 21.12.030, zoning (Title 21)
C-5985	Adds subsection (b) to paragraph (1) of § 10.12.010, subsections 723 and 724 to § 10.20.070, subsections 41 and 42 to § 10.24.080; adds subsections 59 through 61 to, and amends subsection (a) of, paragraph 41 of § 10.12.020; adds subsections 165 through 168 to, and repeals subsections 26, 74 and 119 of, § 10.34.040, traffic control (10.12, 10.20, 10.24, 10.34)
C-5986	Amends subsection M of Table 21-1 of § 21.21.020, zoning (Title 21)
C-5987	Amends Parts 22, 23, 28 and 29 of official Use District Map (Special)
C-5988	Adds subsection N to § 21.18.030, and subsection O to § 21.18.040; amends §§ 21.18.010, 21.18.020, 21.18.070, 21.18.090 and 21.18.215, zoning (Title 21)

Ordinance Number	Disposition
C-5989	Adds subsection N to § 21.18.030, subsections O, P and Q to § 21.18.040, subsection K to § 21.21.030, subsections D, E and F to § 21.21.040, subsection D to § 21.24.030, subsection E to § 21.24.040, subsection H to § 21.27.030, subsection I to § 21.27.040, and §§ 21.15.180 and 21.54.035; amends subdivisions 7 and 8 of subsection B of § 21.12.040, Table 18-1 of § 21.18.020, Table 21-1 of § 21.21.020, and § 21.54.030, zoning (Title 21)
C-5990	Adds subsection K to § 12.12.100, oil production permits; and adds § 21.21.520, zoning (12.12, Title 21)
C-5991	Adds subsection 725 to § 10.20.070, subsection 219 to § 10.24.070, and subsections 169 through 175 to § 10.34.040, traffic control (10.20, 10.24, 10.34)
C-5992	Adds subsection N to § 21.18.030; amends § 1 of Ord. C-5989, zoning; repeals §§ 5 and 6 of Ord. C-5988 and § 6 of Ord. C-5989(Title 21)
C-5993	Amends Parts 4, 9 and 10 of official Use District Map (Special)
C-5994	Adds Ch. 21.99, Zoning (Title 21)
C-5995	Adds subsections O and P to § 8.76.010, property maintenance; amends § 5.10.070, automobile business; adds subdivision 2 to subsection C of § 21.21.040, and adds § 21.21.530; amends Table 18-1 of § 21.18.020, subsection A of § 21.18.040, and §§ 21.18.030, 21.18.590, 21.21.030, 21.93.030 and 21.93.040, zoning; repeals § 5.10.050 (Title 5, 8.76, Title 21)
C-5996	Amends § 2.09.010, departmental organization (Repealed by C-6496)
C-5997	Amends subsection B of § 2.03.020, City Council (2.03)
C-5998	Adds §§ 2.14, 4.04.5 and subsection (g) to § 4.01; amends §§ 2.07, 2.09, 4.03, subsection (f) of § 4.04, and subsection (b) of § 5.03 of Ord. C-3548, personnel (Not codified)
C-5999	Amends the title and §§ 3, 6, 10 and 11 of Ord. C-5995, zoning; amends § 5.10.070, automobile businesses (Title 5, Title 21)
C-6000	Adds § 3.44.030, checks (3.44)
C-6001	Adds § 16.16.100, parks and beaches; amends § 10.30.080, beach area parking lots (10.30, 16.16)
C-6002	Adds subsections 726 and 738 to, and amends subsections 720 and 721 of, § 10.20.070; adds subsections 21 and 22 to § 10.34.050; amends subsection 203 of § 10.24.070; repeals subsections 2, 3, 4, 6, 8, 9, 10, 11, 12, 13, 14, 16 and 17 of § 10.20.080, traffic control (10.20, 10.24, 10.34)
C-6003	Adds § 2.93.050; repeals § 2.03.130, hearing procedure (2.93)
C-6004	Adds subsection 12 to § 5.22.050A and adds §§ 5.22.051 and 5.22.071; amends §§ 5.22.060, 5.22.070 and 5.22.190, charitable solicitations (Title 5)
C-6005	Adds subsections E and F to § 16.46.080 and subsection C to § 16.46.090; amends §§ 16.46.040, 16.46.050, 16.46.060, 16.46.070, subsection D of § 16.46.080, § 16.46.100 and 16.46.110, flight allocations (Repealed by C-6278)
C-6006	Adds subsections F and G to § 5.55.180; amends § 5.55.150, pedicabs (Title 5)

Ordinance Number	Disposition
C-6007	Approves Resolution No. 911, water rates (Special)
C-6008	Amends § 4.03 of Ord. C-3548, personnel (Not codified)
C-6009	Amends §§ 8.84.020, 8.84.030, 8.84.040, 8.84.050, 8.84.060, 8.84.070 and 8.84.110A, aircraft noise control (Repealed by C-6278)
C-6010	Amends Part 10 of official Use District Map (Special)
C-6011	Adds subsection R to § 21.18.040; amends Table 18-1 of § 21.18.020 and amends §§ 21.81.040 and 21.87.030, zoning (Title 21)
C-6012	Amends Part 9 of official Use District Map (Special)
C-6013	Amends Part 11 of official Use District Map (Special)
C-6014	Adds subsection 739 to § 10.20.070 and subsections 176 through 195 to § 10.34.040, traffic control (10.20, 10.34)
C-6015	Adds § 18.12.201; amends §§ 18.04.090, 18.04.100, 18.12.100, 18.12.120, 18.12.130, 18.12.140, 18.12.160—18.12.200, 18.12.230, 18.16.080, 18.20.100, 18.20.250, 18.32.250—18.32.290, 18.32.330, 18.36.250, 18.36.260, 18.44.120, 18.44.160, 18.44.310, 18.44.330, 18.44.340 and 18.52.200; repeals §§ 18.32.300, 18.36.240, 18.44.320 and 18.52.210, buildings and construction (18.04, 18.12, 18.16, 18.20, 18.32, 18.36, 18.44, 18.52)
C-6016	Adds subsections I and K to § 5.06.020 and adds §§ 5.06.134 and 5.06.137; amends subsection F of § 5.06.020 and § 5.06.090, alarm systems (Title 5)
C-6017	Amends paragraphs B (3) and B (4) of § 3.60.050 and B (3) of § 3.60.060, sales and use tax (Repealed by C-6022)
C-6018	Adds § 18.48.232 and 18.48.282, fire code (18.48)
C-6019	Amends § 21.45.040, subsection E of § 21.45.170, and § 21.45.250, signs (Title 21)
C-6020	Adds § 16.52.160 and 16.52.170, historical landmarks (16.52)
C-6021	Amends §§ 5.60.030 and 5.60.050, business licenses (Title 5)
C-6022	Repeals Ord. C-6017 (Repealer)
C-6023	Amends § 15.44.190, pipeline permits (15.44)
C-6024	Authorizes time off or compensation for City employees on January 16, 1984 (Special)
C-6025	Adds subsections 740 through 742 to § 10.20.070 and subsections 220 and 221 to § 10.24.070, traffic control (10.20, 10.24)
C-6026	Adds § 16.52.180, historical landmarks (16.52)
C-6027	Amends subsection B2 of § 21.45.180, zoning (Title 21)
C-6028	Establishes a Capital Projects Fund (Special)
C-6029	Amends §§ 21.09.010 and 21.36.050, zoning (Title 21)
C-6030	Adds §§ 21.12.200 B9 and 21.12.285; and amends §§ 21.12.010N—R, 21.12.020B, 21.12.060, 21.12.090, 21.12.280B1, 21.12.310 and 21.12.320, zoning (Title 21)
C-6031	Amends Part 22 of official Use District Map (Special)
C-6032	Temporarily prohibits new subdivisions within the Bluff Park Neighborhood (Special)

Ordinance Number	Disposition
C-6033	Authorizes sale of revenue bonds for construction of a new public parking garage (Special)
C-6034	Amends Part 10 of official Use District Map (Special)
C-6035	Adds subsections 196—201 to § 10.34.040, parking for handicapped persons in public places (Repealed by C-7469)
C-6036	Adds Ch. 10.25, Motor Vehicle Alarms; and amends subsection K3 of § 8.80.200, noise (8.80, 10.25)
C-6037	Adds §§ 16.44.150, 16.44.151, 16.44.152 and 16.44.153, helicopter operations (16.44)
C-6038	Adds subsections 743—746 to § 10.20.070 and subsection 43 to § 10.24.080, traffic control (10.20, 10.24)
C-6039	Amends Table 18-1 of § 21.18.020, zoning (Title 21)
C-6040	Amends Part 17 of official Use District Map (Special)
C-6041	Approves Long Beach Civic Center ground lease amendment and the Long Beach Civic Center sublease amendment (Special)
C-6042	Approves supplemental joint exercise of powers agreement between the City and the County (Special)
C-6043	Adds subsection 78 to § 10.14.020, adds subsections 747 and 748 to § 10.20.070, subsections 44 and 45 to § 10.24.080 and subsections 202—204 to § 10.34.040; and repeals subsections 21 and 49 of § 10.34.040, traffic control (10.14, 10.20, 10.24, 10.34)
C-6044	Amends Part 11 of official Use District Map (Special)
C-6045	Amends subsections B2, B9 and B10 of § 21.45.180, zoning (Title 21)
C-6046	Adds § 5.54.021 and 5.54.022; and amends §§ 5.54.010 and 5.54.020 and the heading of Ch. 5.54, peddlers (Repealed by C-7423)
C-6047	Amends § 16.08.130, marinas (16.08)
C-6048	Adds subsections 205 and 206 to § 10.34.040, traffic control (Repealed by C-7469)
C-6049	Authorizes application to State Board of Corrections for State aid for standards and training for corrections pursuant to Art. 3 of Ch. 5 of Title 7 of Part 3 of the California Penal Code (Special)
C-6050	Amends subsections 749 and 750 to § 10.20.070 and subsections 207—211 of § 10.34.040; and repeals § 10.48.080, traffic control (10.20)
C-6051	Adds § 3.64.035; and amends § 3.64.100, transient occupancy tax (3.64)
C-6052	Amends Parts 29 and 30 of official Use District Map (Special)
C-6053	Adds §§ 21.06.2035, 21.06.2518 and 21.54.025; and amends Table 21-1 of § 21.21.020, Table 21-2 of § 21.21.070, Table 21-3 of § 21.21.080, and amends § 21.54.030, zoning (Title 21)
C-6054	Amends § 21.09.040, zoning (Title 21)
C-6055	Amends Parts 3 and 9 of official Use District Map (Repealed by C-7533)
C-6056	Adds §§ 8.44.061 and 8.44.062, restaurants (8.44)
C-6057	Adds subsection 751 to § 10.20.070, traffic control (10.20)

Ordinance Number	Disposition
C-6058	Amends development and use standards for the southeast area development and improvement plan adopted by Ord. C-5328; and repeals Ords. C-5336 and C-5501 (Repealed by C-7528)
C-6059	Amends subsection B of § 21.12.020, zoning (Title 21)
C-6060	Amends Parts 4 and 5 of official Use District Map (Special)
C-6061	Amends § 21.18.180, zoning (Title 21)
C-6062	Amends Part 5 of official Use District Map (Special)
C-6063	Amends Ord. C-5536, Belmont Pier planned development (Special)
C-6064	Amends Part 5 of official Use District Map (Special)
C-6065	Amends Ch. 5.66; and repeals subsection E of § 5.04.290 and Ch. 5.40, taxicabs (Title 5)
C-6066	Amends § 2.54.005, Recreation Commission (2.54)
C-6067	Adds subsections 82—86 to § 10.08.120, adds subsections 752—758 to § 10.20.070 and subsections 222 and 223 to § 10.24.070, traffic control (10.08, 10.20, 10.24)
C-6068	1984-1985 budget (Special)
C-6069	Adds Ch. 2.52, public safety advisory commission (2.52)
C-6070	Amends part 16 of official Use District Map (Special)
C-6071	Amends § 2.09.010, departmental organization (Repealed by C-6496)
C-6072	Amends §§ 1.20, 2.10, 2.11, 2.14, subsection (c) of § 4.11 of Ord. C-3548, personnel (Not codified)
C-6073	Repeals Ord. C-5976, salaries for city council members (Repealed by C-6115)
C-6074	Amends § 10.38.090E, traffic control (10.38)
C-6075	Amends § 3.68.080 and the title of § 3.68.090, utility users tax (3.68)
C-6076	Amends § 15.36.120A, gas rates (15.36)
C-6077	Amends §§ 2.63.070, 2.63.080, cultural heritage committee (2.63)
C-6078	Temporarily prohibiting new development exceeding certain specified height limits in the R-1-S, R-2-S, R-2-I and R-4-R zoning districts (Not codified)
C-6079	Adds § 16.44.041, airport ground transportation services (16.44)
C-6080	Adds § 21.12.0200, 21.12.040 B14, zoning (21.12)
C-6081	Completion and refurbishment of Silverado park community building (Special)
C-6082	Amends Ord. C-5962, temporary prohibition on new development in certain area (Not codified)
C-6083	Amends part 10 of official Use District Map (Special)
C-6084	Amends part 11 of official Use District Map (Special)
C-6085	Amends part 17 of official Use District Map (Special)
C-6086	Adds § 5.72.040, hotel and motel rentals (5.72)
C-6087	Adds § 21.21.040G; amends § 21.21.020J21, zoning (21.21)
C-6088	Temporarily removing permit and fee requirements for placement of signs, banners and pennants on private property (Special)
C-6089	Adds subsection 759 to § 10.20.070, traffic control (10.20)

Ordinance Number	Disposition
C-6090	Adds subsection d to paragraph 12, subsection c to paragraph 56, and paragraph 66 of § 10.12.010; amends subsections a and b of paragraph 49, traffic control (10.12)
C-6091	Adds subsection 46 to § 10.24.080, traffic control (10.24)
C-6092	Amends § 2.09.010 R, S, departmental organization (Repealed by C-6496)
C-6093	Adds §§ 6.16.250, 6.16.260, vicious animals (6.16)
C-6094	Amends §§ 21.06.2210, 21.12.040 B6, 21.12.210, zoning (21.06, 21.12)
C-6095	Adds subsections 760—764 to § 10.20.070, traffic control (10.20)
C-6096	Amends §§ 6.08.010, 6.08.030, and 6.08.040, dog licensing (6.08)
C-6097	Adds subsection 14.5 to § 21.18.020, adds § 21.18.040S, 21.06.1625; amends subsection 14 of § 21.18.020, motorcycle sales and service (21.06, 21.18)
C-6098	Amends § 21.45.180B, zoning (21.45)
C-6099	Adds §§ 8.76.010Q, R, 8.76.210E, 10.04.060, 10.22.160; amends § 8.76.210A, parking violations and enforcement (8.76, 10.04, 10.22)
C-6100	Amends part 9 of official use district map (Special)
C-6101	Adds Ch. 9.60, regulation of sexually explicit materials (9.60)
C-6102	Adds subsections 765—767 to §§ 10.20.070, 10.24.020 B4, traffic control (10.20, 10.24)
C-6103	Authorizes issuance of intermodal container transfer facility revenue bonds (Special)
C-6104	Amends Ch. 8.56, weed removal (8.56)
C-6105	Adds § 5.60.102, entertainment cafe (5.60)
C-6106	Amends part 9 of official use district map (Special)
C-6107	Amends § 2.54.005, recreation commission (2.54)
C-6108	Amends part 11 of official use district map (Special)
C-6109	Adds §§ 21.06.683, 21.06.686, 21.12.0300D, Ch. 21.94; amends §§ 21.06.680, 21.06.690, zoning (21.06, 21.12, 21.94)
C-6110	Adds subsections 224—229 to § 10.24.070, traffic control (10.24)
C-6111	Adds § 5.18.225, bingo (5.18)
C-6112	Adds § 8.84.030E, F, aircraft noise control regulations (Repealed by C-6278)
C-6113	Adds subsections 768—772 to § 10.20.070; repeals subsections 225—229 of § 10.24.070, traffic control (10.20, 10.24)
C-6114	Amends § 10.46.050—10.46.090, abandoned vehicles (10.46)
C-6115	Repeals Ord. C-6073, salaries for city council members (Repealed by C-6215)
C-6116	Amends § 8.84.020D, 8.84.0300, aircraft noise control regulations (Repealed by C-6278)
C-6117	Amends § 8.84.020D, 8.84.0300, aircraft noise control regulations (Repealed by C-6278)
C-6118	Amends § 16.16.060, parks and beaches (16.16)
C-6119	Amends § 1.05 and 4.01(e) of Ord. C-3548, personnel ordinance (Not codified)
C-6120	Amends § 5.74.245, cable communication system franchises (5.74)

Ordinance Number	Disposition
C-6121	Adds § 8.08.192, rat control (8.08)
C-6122	Amends § 2.03.020, council meetings (2.03)
C-6123	Adds Ch. 14.06, temporary occupation of public streets (Repealed by C-7933)
C-6124	Amends § 2 of Ord. C-6078, zoning (Not codified)
C-6125	Adds subsection 79 to § 10.14.020, subsections 773 and 774 to § 10.20.070, subsections 230 and 231 to § 10.24.070, subsections 47 and 48 to § 10.24.080 and subsections 23—25 to § 10.34.050; amends § 10.04.050B, traffic control (10.04, 10.14, 10.20, 10.24, 10.34)
C-6126	Amends subsection 553 of § 10.20.070, traffic control (10.20)
C-6127	Amends § 3.68.050, telephone user's tax (3.68)
C-6128	Amends part 9 of official use district map (Special)
C-6129	Amends §§ 3 and 4 of Ord. C-6068, 1984-1985 budget (Special)
C-6130	Amends § 5.02.190, business licenses (5.02)
C-6131	Adds §§ 21.18.0405, 21.06.1015, 21.06.2415; amends §§ 5.30.050, 21.18.020 table 18-1 (personal services); repeals § 5.30.130, fortunetelling and tattooing parlors (5.30, 21.06, 21.18)
C-6132	Amends § 16.16.010, parks and beaches (16.16)
C-6133	Amends §§ 14.36.010 and 14.36.050, house numbers on curbs (14.36)
C-6134	Amends § 21.75.060, zoning (Title 21)
C-6135	Adds § 5.68.0900; and amends § 5.68.090 F 1 and 2, J and K and § 10.22.160, towing operations and parking on private property (Title 5, 10.22)
C-6136	Adds subsection 775 to § 10.20.070 and subsections 212—226 to § 10.34.040; amends subsection 92 of § 10.34.040; and repeals subsections 13, 15, 16, 51, 68, 104, 120—122, 129 and 163 of § 10.34.040, traffic control (10.20, 10.34)
C-6137	Adds §§ 18.16.011, 18.24.061, 18.24.115, 18.24.116, 18.24.117, 18.24.135, 18.32.210A 11, 18.32.320E, 18.32.335, 18.36.141, 18.36.151, 18.36.190J 10, 18.36.261, 18.40.021, 18.40.022, 18.40.023, 18.44.261, 18.44.262, 18.44.331 and 18.44.332; amends §§ 18.08.020, 18.08.040, 18.08.050, 18.08.060, 18.08.070, 18.08.080, 18.08.130, 18.08.140, 18.08.160, 18.08.170, 18.08.200, 18.08.220, 18.12.010 B and C, 18.12.100, 18.12.130, 18.12.220, 18.16.060, 18.16.110, 18.20.300, 18.24.010, 18.24.020, 18.24.030, 18.24.080, 18.24.100, 18.24.130, 18.24.180, 18.24.200, 18.28.010, 18.28.020, 18.28.030, 18.32.120F, 18.32.150, 18.32.230, 18.36.010, 18.36.020, 18.36.030, 18.36.220, 18.40.010, 18.40.020 and 18.40.030; and repeals §§ 18.24.090, 18.24.210, 18.28.040, 18.28.050, 18.28.060 and 18.36.040, buildings and construction (18.08, 18.12, 18.16, 18.20, 18.24, 18.28, 18.32, 18.36, 18.40, 18.44)
C-6138	Amends Part 15 of official Use District Map (Special)
C-6139	Adds § 10.18.040, living in vehicles (10.18)

Ordinance Number	Disposition
C-6140	Authorizes southeast resource recovery facility authority to issue bonds (Special)
C-6141	Amends Part 10 of official Use District Map (Special)
C-6142	Amends § 3.52.130, bonds and public improving financing (3.52)
C-6143	Amends § 2.24.020 and 2.24.070, Board of Health (2.24)
C-6144	Adds Ord. 5.76, Water Taxis, Charter Boats, Cruise Boats and Gondolas (Title 5)
C-6145	Adds § 21.45.185, zoning (Title 21)
C-6146	Adds subsections 776—780 to § 10.20.070, subsection 129 to § 10.24.120 and subsection 227 to § 10.34.040, traffic control (10.20, 10.24, 10.34)
C-6147	Amends § 6.04.070, animal shelter (6.04)
C-6148	Amends Ord. C-5562, Belmont Pier planned development (Special)
C-6149	Amends Part 15 of official Use District Map (Special)
C-6150	Amends Ord. C-6055, residential and commercial development standards in the Downtown West Planned Development District (Special)
C-6151	Amends Ord. C-5561, parking and principal uses for boat operations in Long Beach Marina (Special)
C-6152	Amends § 21.18.020 Table 18-1(restaurants), zoning (Title 21)
C-6153	Amends Part 9 of official Use District Map (Special)
C-6154	Adds §§ 16.52.190, 16.52.200 and 16.52.210, historic landmarks (16.52)
C-6155	Amends Parts 14 and 15 of official Use District Map (Special)
C-6156	Adds subsections 228, 229 and 230 to; and repeals subsections 47, 70 and 95 of, § 10.34.040, traffic control (Repealed by C-7469)
C-6157	Temporarily prohibits granting of density incentives north of 64th Street or its westerly prolongation from the western to the eastern corporate boundaries of the City (Repealed by C-6264)
C-6158	Adds § 10.02.145; and amends §§ 10.04.060 and 10.22.020, parking (10.02, 10.04, 10.22)
C-6159	Amends § 2.54.005; and repeals Ord. 2.51, Recreation Commission (2.54)
C-6160	Amends Part 15 of official Use District Map (Special)
C-6161	Adds §§ 8.76.0105 and 8.76.015, property maintenance (8.76)
C-6162	Amends Part 14 of official Use District Map (Special)
C-6163	Amends Part 22 of official Use District Map (Special)
C-6164	Adds § 21.12.550; and amends §§ 20.34.040, 21.12.020 and 21.12.040 B13, mobilehome parks (20.34, Title 21)
C-6165	Adds subsections 781 and 782 to § 10.20.070 and subsection 49 to § 10.24.080; and repeals subsections 20 and 219 of § 10.34.040, traffic control (10.24, 10.34)
C-6166	Adds subsection 234 to § 10.34.040; amends subsection 178 of § 10.24.070; and repeals subsection 117 of § 10.34.040, traffic control (10.24, 10.34)
C-6167	Adds subsection B 6 k to; and amends subsections B 6 c and F of 21.12.040, zoning (Title 21)

Ordinance Number	Disposition
C-6168	Adds subsections 39c and 67—69 to § 10.12.010 and subsection 62 to § 10.12.020; amends subsections 26g, 30a and 59b of § 10.12.010, and repeals subsection 223 of § 10.34.040, traffic control (10.12, 10.34)
C-6169	Amends §§ 3.20.010 and 3.20.020; and repeals § 3.20.030, imprest cash funds (3.20)
C-6170	1985-86 budget (Special)
C-6171	Amends Part 15 of official Use District Map (Special)
C-6172	Amends Part 14 of official Use District Map (Special)
C-6173	Amends § 2.09.010. departmental organization (Repealed by C-6496)
C-6174	Adds §§ 15.36.071 and 15.36.072, gas rates (15.36)
C-6175	Adds Ch. 15.74; and repeals Ch. 5.74, franchises for cable communications systems (15.74)
C-6176	Amends Part 22 of official Use District Map (Special)
C-6177	Adds subsections 776 and 777 to § 10.20.070; and repeals § 1 of Ord. C-6165, traffic control (Repealed by C-6187)
C-6178	Amends § 2 of Ord. C-6078, zoning (Not codified)
C-6179	Declares certain land and water areas within harbor district to be subject to tidelands trust (Special)
C-6180	Establishes Alamitos Land planned development district; amends Part 11 of official Use District Map (Special)
C-6181	Amends Part 20 of official Use District Map (Special)
C-6182	Amends § 5.02.070, business license tax (Title 5)
C-6183	Adds subsection F to § 2.84.050, contracts (2.84)
C-6184	Amends Ch. 5.55, pedicabs (Title 5)
C-6185	Adds subsections 783, 784 and 785 to § 10.20.070, subsection 233 to § 10.24.070 and subsections 235 and 236 to § 10.34.040; and repeals subsection 177 of §10.34.040, traffic control (10.20, 10.24, 10.34)
C-6186	Amends Part 11 of official Use District Map (Special)
C—6187	Adds subsections 781 and 782 to § 10.20.070; and repeals § 2 of Ord. C-6177, traffic control (10.20)
C-6188	Adds § 8.68.040—8.68.160; and amends § 8.68.010—8.68.030, smoking in public places (8.68)
C-6189	Adds 232 to § 10.24.070 and 231—233 to § 10.34.040; and repeals subsections 100 and 192 of 10.34.040, traffic control (10.24, 10.34)
C-6190	Adds subsections 786—788 to § 10.20.070, subsection 234 to § 10.24.070, and subsection 237 to § 10.34.040; amends subsection F of § 10.38.090, and repeals subsection 118 of § 10.34.040, traffic control (10.20, 10.24, 10.34, 10.38)
C-619 1	Amends Part 15 of official Use District Map (Special)

Ordinance Number	Disposition
C-6192	Adds §§ 21.06.415, 21.06.1785, 21.12.030 E, F and G, 21.12.250 E, 21.12.315, 21.12.325, 21.12.335, 21.12.355, 21.12.356, 21.12.357, 21.12.365, 21.12.425, 21.12.442, 21.12.444, 21.12.446, 21.12.448, 21.12.545, 21.18.415 and 21.18.620; amends § 8.76.010 F and G, 21.06.2100, 21.06.2560, 21.12.260, 21.12.270, 21.12.280B, 21.12.320, 21.12.330, 21.12.350, 21.12.360, 21.12.370, 21.12.390—21.12.440, 21.12.450 and 21.12.460; and repeals §§ 21.12.445, 21.60.080 and 21.75.040, personal and recreational vehicle parking and storage and zoning (8.76, Title 21)
C-6193	Adds § 16.52.220, historic landmarks (16.52)
C-6194	Adds § 6.12.150, rabies control (6.12)
C-6195	Amends Part 15 of official Use District Map (Special)
C-6196	Amends § 2 of Ord. C-6078, zoning (Repealed by C-6197)
C-6197	Amends § 2 of Ord. C-6078, zoning (Not codified)
C-6198	Adds subsection 87 to § 10.08.120, subsection 789 to § 10.20.070 and subsection 235 to § 10.24.070, traffic control (10.08, 10.20, 10.24)
C-6199	Adds Art. III to Ch. 2.03, city council (2.03)
C-6200	Lease agreement with Southeastern Resource Recovery Facility Authority (Repealed by C-6214)
C-6201	Amends § 21.84.040 and 21.84.050, zoning (Title 21)
C-6202	Amends § 15.74.725, franchises for cable communications systems (15.74)
C-6203	Amends § 2 of Ord. C-6078, zoning (Repealed by C-6264)
C-6204	Rezone (Special)
C-6205	Rezone (Special)
C-6206	Adds §§ 16.52.230, 16.52.240 and 16.52.250, historic landmarks (16.52)
C-6207	Amends § 21.12.020, zoning (Title 21)
C-6208	Amends §§ 5.48.020, 5.48.030, 5.48.050, 5.48.060 and 9.22.060, alcoholic beverages (Title 5, 9.22)
C-6209	Adds subsection 790 to § 10.20.070, subsections 130 and 131 to § 10.24.120 and subsection 238 to § 10.34.040; repeals subsections 12, 123, 131 and 196 of 10.34.040, traffic control (10.20, 10.24, 10.34)
C-6210	(Repealed by C-6274)
C-6211	Amends subsection A of § 5.04.160 A, business licenses (Title 5)
C-6212	Rezone (Special)
C-6213	Adds subsection 88 to § 10.08.120, subsections 132 and 133 to § 10.24.120, and subsections 239 and 240 to § 10.34.040; repeals subsection 176 of § 10.34.040, traffic control (10.08, 10.24, 10.34)
C-6214	Repeals and replaces Ord. C-6200, lease agreement with Southeastern Resource Recovery Facility Authority (Special)
C-6215	Salaries for city council members; repeals Ord. C-6115(Repealed by C-289)
C-6216	Rezone (Special)
C-6217	Amends Ord. C-6170, budget appropriation for SERRF loan trust fund (Special)
C-6218	Amends § 2 of Ord. C-6078, zoning (Not codified)

Ordinance Number	Disposition
C-6219	Amends § 3 of Ord. C-6170, Belmont Shore parking meter revenue fund (Special)
C-6220	Adds § 21.06.035; amends §§ 21.18.020 Table 18-1 (outdoor advertising), 21.21.020 Table 21-1 (outdoor advertising), 21.48.030, 21 .48.090 and 21 .48.110; and repeals §§ 21.48.040, 21.48.050, 21.48.055 and 21.48.070, zoning (Title 21)
C-6221	Adds § 21.06.425, 21.06.1937, 21.12.030 H, 21.12.170 G and H, 21.12.205, 21.12.540 G and 21.54.075; amends §§ 21.06.1110, 21.06.1170, 21.12.070, 21.12.100 A, 21.12.190, 21.12.200 (B), 21.12.250, 21.12.510 E, 21.54.020, 21.54.040, 21.57.020, 21.81.060, 21.96.010, 21.96.020, 21.96.070 and 21.96.080; and repeals § 21 .90.050, zoning (Title 21)
C-6222	Amends § 21.12.060 Table 12-1, zoning (Title 21)
C-6223	Amends Part17 of official Use District Map (Special)
C-6224	Amends § 18.12.010D2m, building permits (18.12)
C-6225	Adds subsections 791—793 to § 10.20.070, subsections 237—240 to § 10.24.070, subsections 50 and 51 to § 10.24.080, subsections 241—244 to § 10.34.040 and subsection Z to § 10.54.040; amends subsection 5 of § 10.24.040 and subsection 38 of § 10.24.080; and repeals subsections 8, 43, 50, 189, 191, 198, 228 and 240 of § 10.34.040, traffic control (10.20, 10.24, 10.34, 10.54)
C-6226	Amends § 5.66.050, taxicabs (Title 5) C-6227 Authorizes Southeast Resource Recovery facility authority to issue additional bonds, bond anticipation notes or other evidence of indebtedness (Special)
C-6228	Assumption of responsibility for implementation and enforcement of Ch. 6.95 (commencing with § 25500) of Div. 20 of the Health and Safety Code of the state (Not codified)
C-6229	Adds subsection 794 to § 10.20.070, subsection 241 to § 10.24.070 and subsections 245—247 to § 10.34.040; repeals subsection 127 of § 10.34.040, traffic control (10.20, 10.24, 10.34)
C-6230	Amends §§ 2.24.010, 2.24.020 and 2.24.070, board of health (2.24)
C-6231	Adds Ch. 20.14; and amends § 20.12.190, subdivisions (20.12, 20.14)
C-6232	Adds § 21.06.273; and amends § 21.12.160, zoning (Title 21)
C-6233	Amends § 21.24.040, zoning (Title 21)
C-6234	Amends § 21.18.020 Table 18-2 (professional services) and § 21.21.030; and adds §§ 21.06.224, 21.18.0300 and 21.21.020 Table 21-1 (BB), zoning (Title 21)
C-6235	Amends § 14.08.280 J, excavations and street surface improvements (14.08)
C-6236	Amends § 2.09.0100, M and Q, departmental organization (Repealed by C-6496)

Ordinance Number	Disposition
C-6237	Adds subsections 795 and 796 to § 10.20.070, subsection 242 to § 10.24.070, subsections 248—254 to § 10.34.040 and subsection AA to § 10.54.040, and repeals subsections 30, 78, 206 and 234 of § 10.34.040, traffic control (10.20, 10.24, 10.34, 10.54)
C-6238	Amends § 2.15.010A and 2.15.020, police department (2.15)
C-6239	Adds § 16.52.260, historical landmarks (16.52)
C-6240	Amends Ord. C-6084, Part II of official Use District Map (Special)
C-6241	Adds § 10.24.140, parking restrictions (10.24)
C-6242	Adds subsection 797 to § 10.20.070, subsection 34 to § 10.24.100, subsections 134 and 135 to § 10.24.120, traffic control (10.20, 10.24)
C-6243	Authorizes sale of real estate (Special)
C-6244	Adds § 21.06.545; and amends § 21.18.020 Table 18-1 (professional services), zoning (Title 21)
C-6245	Amends § 2.03.020B, city council
C-6246	Adds § 10.22.180 and subsections 54—54 to § 10.24.080; amends subsection 34 of § 10.24.080, and amends § 10.38.110, traffic control (10.22, 10.24, 10.38)
C-6247	Amends § 5.68.090, tow operations (Title 5)
C-6248	Adds subsection 798 to § 10.20.070, special stops (10.20)
C-6249	Adds Ch. 14.40, selling of tickets of admission to places of public assemblage in public places and places open to the public (14.40)
C-6250	Adds §§ 16.08.471 and 16.08.472; amends subsection A of 16.08.340, amends §§ 16.08.470, 16.08.480, 16.08.540, 16.08.550, 16.08.581, subsections B 10 and 12 of § 16.08.650, §§ 16.08.660, 16.08.670 and 16.08.690; and repeals § 16.08.680, marinas (16.08)
C-6251	Adds § 18.12.045; and amends subsection D1 of § 18.12.010, building permits (18.12)
C-6252	Amends §§ 16.12.130 and 16.12.280, Pacific Ocean areas (16.12)
C-6253	Amends Part 11 of official Use District Map (Special)
C-6254	Amends Part 11 of official Use District Map (Special)
C-6255	Amends Parts 16, 17 and 24 of official Use District Map (Special)
C-6256	Amends Parts 16, 17 and 24 of official Use District Map (Special)
C-6257	Amends Part 17 of official Use District Map (Special)
C-6258	Amends §§ 2C and D of Ord. C-6078, zoning (Not codified)
C-6259	Adds Ch. 3.80, business license tax; and repeals Resolutions C-22519 and C-23985 (3.80)
C-6260	Amends Title 5, regulation of businesses, trades and professions (5.02, 5.04, 5.06, 5.08, 5.10, 5.12, 5.14, 5.16, 5.18, 5.20, 5.22, 5.24, 5.26, 5.28, 5.30, 5.32, 5.34, 5.36, 5.38, 5.40, 5.42, 5.44, 5.46, 5.48, 5.50, 5.52, 5.54, 5.56, 5.58, 5.60, 5.62, 5.64, 5.66, 5.68, 5.70, 5.72, 5.74, 5.78, 5.80, 5.82, 5.84, 5.86)
C-626 1	Adds subsection B4 to § 21.12.500, zoning (Title 21)

Ordinance Number	Disposition
C-6262	Amends § 21.12.280, Table I 2-2 and subsection B; amends §§ 21.12.290, 21.12.300, 21.12.310 and 21.12.315, zoning (Title 21)
C-6263	1986-87 budget (Special)
C-6264	Repeals Ords. C-6157 and C-6203(Repealer)
C-6265	Amends § 2.09.010, departmental organization (Repealed by C-6496)
C-6266	Adds Ch 8.88, hazardous materials cleanup (8.88)
C-6267	Amends § 21.12.160, zoning (Title 21)
C-6268	Adds subsection A80 to § 10.14.020, subsections 799—801 to § 10.20.070, subsections 136 and 137 to § 10.24.120, and subsections 255—260 to § 10.34.040; and repeals subsections 34, 124, 137, 181, 225 and 230 of § 10.34.040, traffic control (10.14, 10.20, 10.24, 10.34)
C-6269	Amends Part 22 of official Use District Map (Special)
C-6270	Adds subsection E to § 21.63.020, zoning (Title 21)
C-6271	Amends Part 11 of official Use District Map (Special)
C-6272	Adds subsections 14—17 to § 10.24.040, parking (10.24)
C-6273	Approves execution of first supplemental lease to lease of Southeast Resource Recovery Facility (Special)
C-6274	Repeals Ch. 10.70 (Repealer)
C-6275	Amends § 21.66.020, zoning (Title 21)
C-6276	Amends § 20.32.570, subdivision design standards (20.32)
C-6277	Amends §§ 2 and 4 of Ord. C-6078, zoning (Not codified)
C-6278	Adds Ch. 16.45; and repeals Chs. 8.84 and 16.46, Aircraft Noise Compatibility and Flight Allocations (8.84, 16.45, 16.46)
C-6279	Adds subsection 802 to § 10.20.070, subsection 243 to § 10.24.070 and subsection 42 to § 10.24.110; and amends subsection 235 of § 10.24.070, traffic control (10.20, 10.24)
C-6280	Adds subsection C to § 10.32.110, preferential residential parking (10.32)
C-6281	Amends Ord. C-6222, Zoning (Title 21)
C-6282	Adds subsections 261—264 to, and repeals subsections 109 and 165 of, § 10.34.040, parking for handicapped persons in public places (Repealed by C-7469)
C-6283	Amends § 10.28.130, parking meters (10.28)
C-6284	Amends Part 9 of official Use District Map (Special)
C-6285	Amends §§ 1.05 and 4.12 of Ord. C-3548, personnel (Not codified)
C-6286	Amends Part 12 of official Use District Map (Special)
C-6287	Adds Ch. 21.39; and amends subsection A of § 21.09.010, zoning (Title 21)
C-6288	Adds subsection T to § 8.76.010; amends subsections A and E of § 8.76.210, and amends § 10.04.060, parking commercial vehicles (8.76, 10.04)
C-6289	Salaries for City Council members; repeals Ord. C-6215 (Repealed by C-6436)

Ordinance Number	Disposition
C-6290	Adds subsections 138—141 to § 10.24.120 and subsections 265—269 to § 10.34.040; and repeals subsection 246 of § 10.34.040, traffic control (10.24, 10.34)
C-6291	Adds subdivisions 81—86 to § 10.14.020A, subsection 18 to § 10.20.080, subsection C to § 10.24.020 and subsection 55 to § 10.24.080, traffic control (10.14, 10.20, 10.24)
C-6292	Temporarily prohibits new development exceeding development standards for R-2-N District in certain area of City (Special)
C-6293	Temporarily prohibits use of tandem parking spaces in various zoning districts in City (Repealed)
C-6294	Amends Part 23 of official Use District Map (Special)
C-6295	Amends Part 11 of official Use District Map (Special)
C-6296	Amends § 21.18.410, zoning (Title 21)
C-6297	Temporarily prohibits issuance of conditional use permits for sale of alcoholic beverages in certain areas of City (Repealed by C-6308)
C-6298	Adds subsections 803—812 to § 10.20.070, subsection 18 to § 10.24.070, subsection 270—274 to § 10.34.040 and subsection 18 to § 10.34.050; and repeals subsections 58, 142 and 216 of § 10.34.040, traffic control (10.20, 10.24, 10.34)
C-6299	Amends subsection 17 of § 10.24.040, parking (10.24)
C-6300	Delegates certain additional powers and duties to Board of Harbor Commissioners relating to conveyance of interests in real property (Special)
C-6301	Amends Ord. C-6293, zoning (Repealed)
C-6302	Adds subsections 244 and 245 to § 10.24.070, parking (10.24)
C-6303	Amends § 15.36.071, gas rates (15.36)
C-6304	Adds subsections 89 and 90 to § 10.08.120, subsection 813 to § 10.20.070, subsection 246 to § 10.24.070 and subsections 275—278 to § 10.34.040; and amends subsections 53 and 54 of § 10.24.080, traffic control (10.08, 10.20, 10.24, 10.34)
C-6305	Amends §§ 5.66.050 and 5.66.360, peddlers (5.80)
C-6306	Temporarily prohibits residential development in certain zoning districts without complying with specified height and density limitations (Special)
C-6307	Temporarily prohibits residential development in certain zoning districts within a specified area of City (Special)
C-6308	Repeals Ord. C-6297 (Repealer)
C-6309	Establishes certain limitations with respect to redevelopment plan for West Beach Redevelopment Project (Special)
C-6310	Establishes certain limitations with respect to redevelopment plan for Downtown Redevelopment Project (Special)
C-6311	Establishes certain limitations with respect to redevelopment plan for Poly High Redevelopment Project (Special)
C-6312	Establishes certain limitations with respect to redevelopment plan for West Long Beach Industrial Redevelopment Project (Special)

Ordinance Number	Disposition
C-6313	Approves execution of second supplemental lease to lease of Southeast Resource Recovery Facility (Special)
C-6314	Adds § 16.52.270, designating the Lafayette Complex as an historical landmark (16.52)
C-6315	Adds §§ 21.06.2533, 21.06.2536, 21.06.2623, 21.06.2625, 21.06.2627 and 21.12.125; amends §§ 21.06.2530, 21.12.020, 21.12.060, 21.12.100, 21.12.200 and 21.12.210, zoning regulations for certain multi-family residential development (21.06, 21.12)
C-6316	Repeals Ords. C-6293 and C-6301 (Repealer)
C-6317	Amends § 5.66.050; renumbers § 5.66.050 as § 5.80.050 and § 5.66.360 as § 5.80.350 (5.66, 5.80)
C-6318	Adds § 10.08.120 (91), (92) and (93), § 10.20.070 (814) and (815), and § 10.24.120 (142), traffic control (10.08, 10.20, 10.24)
C-6319	Adds § 10.24.070 (248) and 10.34.050 (18) and (27); renumbers § 10.24.070 (18) (10.24, 10.34)
C-6320	Amends portion of Parts 4, 5, and 10 and 11 of the official Use District Map (Special)
C-6321	Amends § 2 of Ord. C-5861, Rancho Estates Planned Development District (Special)
C-6322	Adds §§ 10.48.080 and 10.48.090; amends § 10.48.070B, bicycles (10.48)
C-6323	Amends Ord. C-6306, temporarily prohibiting residential development in certain zoning districts without complying with specified height and density limitations (Special)
C-6324	Amends § 2.03.020B, Council meetings (2.03)
C-6325	Adds §§ 5.02.020D, 5.04.055, 5.82.120P, Ch. 5.76; amends §§ 3.80.146, 3.80.180, 3.80.233, 3.80.253, 3.80.320, 3.80.323, 3.80.330, 3.80.421.6, 3.80.425.5, 3.80.427.5, Ch. 5.06, 5.12.080, 5.28.060, 5.34.010, 5.34.100, 5.46.090, 5.58.100, 5.64.040, 5.66.020, 5.68.180, 5.72.010, 5.82.120, 5.84.010, business license taxes and regulatory permits (3.80, 5.02, 5.04, 5.06, 5.12, 5.28, 5.34, 5.46, 5.58, 5.64, 5.66, 5.68, 5.72, 5.76, 5.82, 5.84)
C-6326	Amends §§ 8.26.110, 8.26.140, industrial health hazards (8.26)
C-6327	Adds subsections 279—286 to § 10.34.040; amends § 10.20.070 (810), 10.24.120 (59), handicapped parking, stop intersections and two hour parking (10.20, 10.24, 10.34)
C-6328	Adds § 10.32.110D, preferential parking (10.32)
C-6329	Approves res. 943, water rates (Special)
C-6330	Adds §§ 10.20.070 (816), 10.24.070 (249), 10.24.120 (143) and (144), traffic (10.20, 10.24)
C-6331	Amends Ord. C-5187, amendment to the redevelopment plan for the downtown redevelopment project (Special)
C-6332	Amends § 2.09.010N, parks and recreation department divisions (Repealed by C-6496)
C-6333	Adds §§ 10.24.080 (56), 10.24.120 (145), traffic (10.24)
C-6334	Adds § 10.20.070 (817), (818), traffic (10.20)
C-6335	Amends § 2.84.050, elevator maintenance and repair (2.84)
C-6336	Adds § 10.32.110E, preferential parking area (10.32)

Ordinance Number	Disposition
C-6337	Amends § 10.38.090E, miscellaneous driving rules (10.38)
C-6338	Amends § 21.18.020, uses in OMB districts (21.18)
C-6339	Adds subsection 146 to § 10.24.120, traffic (10.24)
C-6340	Adds § 8.76.192, property maintenance (Repealed by C-6769)
C-6341	Amends § 2 of Ord. C-6307, zoning (Special)
C-6342	Amends §§ 21.99.040, 21.99.110, 21.99.160, 21.99.180, 21.99.210, 21.99.220, zoning (21.99)
C-6343	Establishes All Souls planned development district (Special)
C-6344	Temporarily prohibits residential development in any R-4-R, R-4-N and C zoning district within a specified area of city (Special)
C-6345	Amends first paragraph of § 8.76.010, property maintenance (8.76)
C-6346	Amends Ch. 14.08, excavations and street improvements (Repealed by C-7933)
C-6347	Amends §§ 14.04.010, 14.04.040, obstruction of streets and sidewalks (14.04)
C-6348	Adds subsections 819—822 to § 10.20.070, subsection 57 to § 10.24.080, subsections 287—291 to § 10.34.040; repeals subsection 246 of § 10.24.070, traffic (10.20, 10.24, 10.34)
C-6349	Amends § 2 of Ord. C-6055, official use district map (Special)
C-6350	Adds § 16.20.050—16.20.090, El Dorado park east (16.20)
C-6351	Temporarily prohibits certain uses in city pending study of parking policies relating to such uses (Repealed by C-6361)
C-6352	Adds § 21.18.040U; amends §§ 21.12.020B, 21.12.040, 21.18.020, zoning (21.12, 21.18)
C-6353	Humane emergency housing and assistance law (Special)
C-6354	Adds subdivision 81 to § 10.14.020A, subsection 823 to § 10.20.070, subsection 147 to § 10.24.120, traffic (10.14, 10.20, 10.24)
C-6355	Amends § 2 of Ord. C-5562, official Use District Map (Special)
C-6356	Amends parts 3 and 9 of official Use District Map (Special)
C-6357	Amends § 2 of Ord. C-6255, official Use District Map (Special)
C-6358	Amends § 2 of Ord. C-6351, zoning (Repealed by C-6361)
C-6359	Amends part 11 of official Use District Map (Special)
C-6360	Amends part 28 of official Use District Map (Special)
C-6361	Adds §§ 21.06.1563, 21.18.040V; amends table 18-1 of § 21.18.020, table 21-1 of § 21.21.020; repeals Ords. C-6351 and C-6358 zoning (21.06, 12.18, 21.21)
C-6362	Adds subdivision 87 to § 10.14.020A, one-way streets and alleys (10.14)
C-6363	Amends § 3 of Ord. C-6263, 1986-1987 budget (Special)
C-6364	Adds subdivision 88 to § 10.14.020A, subsection 824 to § 10.20.070, subsection 43 to § 10.24.110, subsection 148 to § 10.24.120, subsections 292—299 to § 10.34.040, traffic (10.14, 10.20, 10.24, 10.34)
C-6365	Amends § 5.66.060A, peddlers (5.66)

Ordinance Number	Disposition
C-6366	Adds § 16.12.131; amends §§ 16.12.080 and 16.12.151, Pacific Ocean areas (16.12)
C-6367	Amends § 2.03.020B, city council (2.03)
C-6368	Adds subsection 149 to § 10.24.120, traffic (10.24)
C-6369	Amends table 18-1 of § 21.18.020, zoning (21.18)
C-6370	Adds subsection 150 to § 10.24.120, subsections 300—302 to § 10.34.040; repeals subsections 10, 55, 80, 207, 213, 231, 267, 268 of § 10.34.040, traffic (10.24, 10.34)
C-6371	Adds § 21.12.040B 12, and § 2N to Ord. C-5833; amends § 21.12.040B, zoning (21.12)
C-6372	Adds subsection 825 to § 10.20.070, subsection 58 to § 10.24.080; amends § 10.38.090S, traffic (10.20, 10.24, 10.38)
C-6373	Adds Ch. 8.90, alcoholic beverages—warning signs (8.90)
C-6374	Adds § 10.14.020A 89, subsection 250 to § 10.24.070, subsection 44 to § 10.24.110, traffic (10.14, 10.24)
C-6375	Amends § 21.18.1605, zoning (21.18)
C-6376	Temporarily prohibits new development in the limited commercial zoning district with the coastal zone of the city not conforming to certain specified zoning regulations (Special)
C-6377	Amends § 2 of Ord. C-5563, zoning (Special)
C-6378	Amends part 5 of official Use District Map (Special)
C-6379	Amends part 15 of official Use District Map (Special)
C-6380	Adds subsection 826 to § 10.20.070, subsection 59 to § 10.24.080, subsections 303—306 to § 10.34.040; repeals subsections 45 and 188 of § 10.34.040, traffic (10.20, 10.24, 10.34)
C-6381	Adds § 16.52.280, historic landmarks (16.52)
C-6382	Amends part 14 of official Use District Map (Special)
C-6383	Adds § 10.32.110F, traffic (10.32)
C-6384	Amends part 29 of official Use District Map (Special)
C-6385	Adds § 5.28.122; amends § 5.28.120A; repeals § 5.28.120F, charitable solicitations (5.28)
C-6386	Adds § 21.06.755; amends Ch. 21.61, zoning (21.06, 21.61)
C-6387	Adds §§ 10.14.020A 90, 10.14.020A 91, subsection 151 to § 10.24.120, traffic (10.14, 10.24)
C-6388	Amends § 1.20.010, political districts (1.20)
C-6389	Amends part 24 of official use district map (Special)
C-6390	Amends parts 10, 16 of official use district map (Special)
C-6391	Amends § 2 of Ord. C-6307, zoning (Special)
C-6392	Amends § 3.68.030, utility users tax (3.68)
C-6393	Amends § 3.64.035, transient occupancy tax (3.64)
C-6394	Adopts 1987-1988 budget (Special)
C-6395	Amends § 2 of Ord. C-6344, zoning (Special)
C-6396	Adds § 16.16.110, parks (16.16)
C-6397	Amends Ch. 12.56, hazardous liquid pipelines (12.56)
C-6398	Amends Ch. 15.44, pipelines and utilities (15.44)

Ordinance Number	Disposition
C-6399	Amends §§ 14.08.1600, 14.08.280, excavations and street improvements (Repealed by C-7933)
C-6400	Adds subsections 827—835 to § 10.20.070, subsection 251 to § 10.24.070, subsections 45 and 46 to § 10.24.110, subsections 307—313 to § 10.34.040; repeals subsection 57 of § 10.24.080, subsections 262, 273, 298 of § 10.34.040, traffic (10.20, 10.24, 10.34)
C-6401	Amends school district boundary description (Not codified)
C-6402	Repeals subsection 147 of § 10.24.120 (Repealer)
C-6403	Amends § 2.09.010, departmental organization (Repealed by C-6496)
C-6404	Adds §§ 18.48.062, 18.48.082, 18.48.084, 18.48.086, 18.48.088, 18.48.104, 18.48.106, 18.48.112, 18.48.122, 18.48.152, 18.48.154, 18.48.182, 18.48.184, 18.48.192, 18.48.222, 18.48.284, 18.48.286, 18.48.288; amends §§ 18.48.010, 18.48.020, 18.48.040, 18.48.050, 18.48.080, 18.48.110, 18.48.140, 18.48.150, 18.48.170, 18.48.180, 18.48.232, 18.48.240, 18.48.290, 18.48.300, 18.48.310, fire code (18.48)
C-6405	Prohibits commercial and industrial development in the ML zoning district in a certain area without complying with specified limitations (Special)
C-6406	Adds subsection 152 to § 10.24.120; amends subsection 35 of § 10.24.080, traffic (10.24)
C-6407	Adds § 8.56.200, weed removal (8.56)
C-6408	Adds Ch. 5.09, employment discrimination (5.09)
C-6409	Amends parts 4 and 10 of official Use District Map (Special)
C-6410	Adds subsection 836 to 10.20.070, subsections 314—316 to § 10.34.040, traffic control (10.20, 10.34)
C-6411	Amends part 11 of official Use District Map (Special)
C-6412	Adopts res. WS-952, emergency water conservation plan (Not codified)
C-6413	Repeals Ch. 2.39(Repealer)
C-6414	Adds §§ 21.06.1175, 21.06.2185, 21.12.040 (B)(2)(j), 21.12.175, 21.12.177, 21.12.212, 21.12.215, 21.12.375, 21.12.560, 21.12.570, 21.12.580; amends §§ 21.06.1110, 21.06.2533, 21.06.2625, 21.06.2627, 21.12.020, 21.12.050, 21.12.060 (B)(table 12-1), 21.12.090, 21.12.100, 21.12.110, 21.12.120, 21.12.160 (table 12-1A), 21.12.170 (F), 21.12.180, 21.12.185, 21.12.190 (5), 21.12.210, 21.12.290, 21.12.310, 21.12.355, 21.12.356, 21.12.365, 21.12.370, 21.12.440, 21.12.500, 21.12.520, Ch. 21.63, zoning (21.06, 21.12, 21.63)
C-6415	Adds subsections 837—843 to § 10.20.070, traffic control (10.20)
C-6416	Amends part 15, parts 9 and 15 of official use district map (Special)
C-6417	Temporarily prohibits development within a specified area of city (Special)
C-6418	Amends § 1, 2 of Ord. C-6376, temporary development prohibition (Special)
C-6419	Adds subsections 844—846 to § 10.20.070, subsection 60 to § 10.24.080, and subsection 317 to § 10.34.040; amends subsection 48 of § 10.24.080; repeals subsections 85, 212, 214, 243 of § 10.34.040, traffic control (10.20, 10.24, 10.34)

Ordinance Number	Disposition
C-6420	Amends part 28 of official Use District Map (Special)
C-6421	Amends part 9 of official Use District Map (Special)
C-6422	Amends part 23 of official Use District Map (Special)
C-6423	Amends §§ 21.12.060 table 12-1, 21.12.357, zoning (21.12)
C-6424	Amends Exh. A of Ord. C-6058, southeast area development and improvement plan (Repealed by C-7528)
C-6425	Amends Exh. A of Ord. C-6058, southeast area development and improvement plan (Repealed by C-7528)
C-6426	Amends § 2.09.010, departmental organization (Repealed by C-6496)
C-6427	Adds subsection 252 to § 10.24.070, parking restrictions (10.24)
C-6428	Adds Ch. 2.97, emergency response cost recovery (2.97)
C-6429	Adds § 21.06.2252, 21.06.2254, 21.06.2256; amends § 21.06.2250, 21.18.2900F, 21.18.410D, zoning (21.06, 21.18)
C-6430	Amends §§ 5.28.071B, 5.28.090A; repeals § 5.28.060B 3, § 5.28.080A 2, 1, 7, § 5.28.100, charitable solicitations (5.28)
C-6431	Adds subsection 847 to § 10.20.070, subsections 318—324 to § 10.34.040; repeals subsection 276 of § 10.34.040, traffic control (10.20, 10.34)
C-6432	Amends § 1.20.010G, H, political districts (1.20)
C-6433	Amends § 10.38.110, parking commercial vehicles (10.38)
C-6434	Amends § 21.18.100D, zoning (21.18)
C-6435	Adds §§ 10.12.020 (8)(e), 10.12.020 (25)(b), 10.20.070 (848) and (849), 10.24.070 (253); amends § 10.14.020B 18, traffic control (10.12, 10.14, 10.20, 10.24)
C-6436	Repeals Ord. C-6289, city council members' salaries (Special)
C-6437	Temporarily limits residential development within a specified area (Repealed by C-6514)
C-6438	Adds § 10.32.110G, preferential residential parking (10.32)
C-6439	Adds § 10.32.110H, preferential residential parking (10.32)
C-6440	Adds §§ 10.14.020B 23, 10.20.070 (850)—(854), 10.24.070 (254), (255), 10.34.040 (325)—(329), traffic control (10.14, 10.20, 10.24, 10.34)
C-6441	Amends part 9 of official Use District Map (Special)
C-6442	Adds subsection 855 to § 10.20.070, special stops (10.20)
C-6443	Temporarily limits residential development within specified areas (Special)
C-6444	Amends part 9 of official Use District Map (Special)
C-6445	Amends § 16.16.010A, parks and beaches (16.16)
C-6446	Adds § 10.32.1101, preferential residential parking (10.32)
C-6447	Adds § 10.32.110J, preferential residential parking (10.32)
C-6448	Amends Exh. A of Ord. C-6058, southeast area development and improvement plan (Repealed by C-7528)
C-6449	Temporarily limits off premises sign development within a specified area (Repealed by C-6452)
C-6450	Amends § 21.99.140, zoning (21.99)

Ordinance Number	Disposition
C-6451	Amends § 14.06.080B, 14.08.160B, 15.44.190B, liability insurance (14.06, 14.08, 15.44)
C-6452	Repeals Ord. C-6449, temporarily limits off premises sign development within a specified area (Special)
C-6453	Adds §§ 18.12.051, 18.40.024—18.40.028; amends §§ 18.04.040A, 18.08.020, 18.08.040—18.08.070, 18.08.090, 18.08.130, 18.08.170, 18.08.200, 18.12.050, 18.16.060E, 18.24.010, 18.24.020, 18.24.200, 18.24.220, 18.28.010, 18.36.010, 18.36.020, 18.40.010, 18.40.020, 18.40.021, 18.40.022, 18.40.023, 18.40.030; repeals §§ 18.24.040, 18.24.115, 18.24.135, 18.28.020, 18.28.030, 18.36.050, buildings and construction (18.04, 18.08, 18.12, 18.16, 18.24, 18.28, 18.36, 18.40)
C-6454	Amends § 2.84.010, contracts (2.84)
C-6455	Amends part 24 of official Use District Map (Special)
C-6456	Adds §§ 21.06.697, 21.06.2055, 21.54.055; amends §§ 21.12.250, 21.18.260, 21.21.160, 21.24.135, 21.54.020, 21.54.040, 21.54.075, 21.54.080, 21.54.090, zoning (21.06, 21.12, 21.18, 21.21, 21.24, 21.54)
C-6457	Temporarily limits certain residential development on portion of Atlantic Avenue (Special)
C-6458	Adds subsections 856—869 to § 10.20.070, subsections 256—258 to § 10.24.070, subsections 330—332 to § 10.34.040; repeals subsections 57, 79, 160, 224, 245, 248, 257, 285 and 300 of § 10.34.040, traffic control (10.20, 10.24, 10.34)
C-6459	Adds subsections 870—876 to § 10.20.070, special stops (10.20)
C-6460	Adds §§ 14.08.010K, 14.08.010L, 14.08.030D, excavations and street improvements (Repealed by C-7933)
C-6461	Amends § 16.08.330, marinas (16.08)
C-6462	Amends § 4 of Ord. C-5106; repeals Ord. C-5201, downtown parking and business improvement area tax (Special)
C-6463	Amends § 2 of Ord. C-2110 and § 2 of Ord. C-2225, setback lines along certain parts of Quincy Avenue in Belmont Shore (Special)
C-6464	Amends § 21.57.070, zoning (21.57)
C-6465	Adds § 16.52.290, historic landmarks (16.52)
C-6466	Amends Ord. C-5621, Long Beach business center planned development district (Special)
C-6467	Amends § 2 of Ord. C-6443, residential development within specified areas (Special)
C-6468	Adds § 16.04.090, piers (16.04)
C-6469	Adds subsections 877—888 to § 10.20.070, subsection 259 to § 10.24.070, subsections 47 and 48 to § 10.24.110, subsections 333—344 to § 10.34.040, traffic control (10.20, 10.24, 10.34)
C-6470	Amends part 11 of official Use District Map (Special)
C-6471	Amends § 1.20 of art. 1 of Ord. C-3548, Personnel (Not codified)
C-6472	Amends part 15 of official Use District Map (Special)
C-6473	Adds subsections 891—895 to § 10.20.070, subsections 345 and 346 to § 10.34.040, traffic control (10.20, 10.34)

Ordinance Number	Disposition
C-6474	Adds § 8.80.202; repeals § 8.80.200F, noise (8.80)
C-6475	Adds subsections 889, 890 to § 10.20.070, subsection 260 to § 10.24.070; repeals subsection 856 of § 10.20.070, subsections 256 and 257 of § 10.24.070, traffic control (10.20, 10.24)
C-6476	Adds § 21.06.2222, 21.24.040G, zoning (21.06, 21.24)
C-6477	Amends § 2 of Ord. C-6417, temporary development prohibition (Special)
C-6478	Adds § 3.80.327; amends § 3.80.330, business license tax (3.80)
C-6479	Adds subsections 896—902 to § 10.20.070, subsections 347—349 to § 10.34.040, vehicles and traffic (10.20, 10.34)
C-6480	Amends § 2.09.010F, departmental organization (Repealed by C-6496)
C-6481	Amends § 2 of Ord. C-6452, temporary off premises sign development limit (Special)
C-6482	Adds § 10.32.110K, preferential residential parking (10.32)
C-6483	Prohibits commercial and industrial development in a certain area without compliance with specified limitations (Special)
C-6484	Adds subsections 903—904 to § 10.20.070; amends subsection 61 of § 10.24.120, vehicles and traffic (10.20, 10.24)
C-6485	Adds subsection 24 to § 10.14.020 (B) and subsections 909—918 to § 10.20.070, vehicles and traffic (10.14, 10.20)
C-6486	Amends Part 17 of official Use District Map (Special)
C-6487	Adds §§ 6.16.061, 6.16.270, 6.16.280, 6.16.290 and 6.16.300; amends §§ 6.16.250 and 6.16.260, animal regulations (6.16)
C-6488	Amends subsections A and B of § 8.80.202, noise (8.80)
C-6489	Amends § 2 of Ord. C-6457, temporary limit on certain residential development (Repealed by C-6493)
C-6490	Adds paragraph G to § 2 of Ord. C-5833, amending Part 9 of official Use District Map (Special)
C-6491	Temporarily limits development of hotels and motels within certain zoning districts (Special)
C-6492	Adds subsection 92 to § 10.14.020 (A), subsections 919—930 to § 10.20.070, subsections 7—14 to § 10.24.020(C), subsection 153 to § 10.24.120 and subsections 350—363 to § 10.34.040, vehicles and traffic; repeals subsections 79, 106, 175, 194 and 263 of § 10.34.040 (10.14, 10.20, 10.24, 10.34)
C-6493	Temporarily limits residential development within a specified area; repeals Ord. C-6489 (Special)
C-6494	1988-1989 budget (Special)
C-6495	Adds Ch. 3.90, surcharge for one-stop permit center (Repealed by C-7000)
C-6496	Departmental organization; repeals Ch. 2.09 (Not codified)
C-6497	Adds § 2.06.060, compensation for members of boards and commissions (2.06)
C-6498	Adds § 8.56.210, weed removal (8.56)
C-6499	Amends § 2 of Ord. C-6452, temporary off-premises sign development limit (Special)

Ordinance Number	Disposition
C-6500	Amends Part 23 of official Use District Map (Special)
C-6501	Adds § 21.51.050, zoning (Title 21)
C-6502	Temporarily limits residential development within a specified area (Special)
C-6503	Amends § 9.58.010, loitering (9.58)
C-6504	Adds subsection 93 to § 10.14.020 (A) and subsection 154 to § 10.24.120; adds subsections 364—367 to and repeals subsections 157, 205 and 314 from § 10.34.040, vehicles and traffic (10.14, 10.24, 10.34)
C-6505	Adds Ch. 10.33, Overnight Parking Permits (Repealed by C-6588)
C-6506	Adds § 10.22.025, parking regulations (10.22)
C-6507	Adds Ch. 18.76, Report of Residential Building Records (18.76)
C-6508	Adds Ch. 16.47, Off-Airport Oar Rentals (16.47)
C-6509	Adds § 16.52.300, historic landmarks (16.52)
C-6510	Amends § 3.48.020, claims and refunds (3.48)
C-6511	Adds subsections 931—942 to § 10.20.070 and subsection 155 to § 10.24.120, vehicles and traffic (10.20, 10.24)
C-6512	Adds §§ 21.06.543, 21.06.1655, 21.06.2105, 21.18.155, 21.18.225, 21.18.285, 21.18.335, 21.18.373, 21.18.375, 21.18.411, 21.18.412, 21.18.414 and 21.18.630; amends §§ 21.18.070, 21.18.080, 21.18.130, 21.18.140, 21.18.160, 21.18.170, 21.18.180, 21.18.215, 21.18.220, 21.18.280, 21.18.290, 21.18.300, 21.18.310, 21.18.320, 21.18.330, 21.18.370, 21.18.410, 21.18.440, 21.18.470, 21.18.530, 21.18.560 and 21.18.570, zoning; repeals §§ 21.06.2252, 21.06.2254, 21.06.2256, 21.18.100, 21.18.110 and 21.18.120 (Title 21)
C-6513	Adds subsections 15—17 to § 10.23.020(C), subsections 943—945 to § 10.20.070 and subsections 368—371 to § 10.34.040; amends subsection 140 of § 10.24.070, vehicles and traffic (10.20, 10.24, 10.34)
C-6514	Amends Parts 16 and 23 of official Use District Map; repeals Ord. C-6437 (Special)
C-6515	Amends § 21.54.090, zoning (Title 21)
C-6516	Amends § 2 of Ord. C-6491, temporary limit on development (Special)
C-6517	Amends Parts 28 and 29 of official Use District Map (Special)
C-6518	Amends Part 29 of official Use District Map (21.37)
C-6519	Adds Oh 15.13, sewer rates (Repealed by C-7173)
C-6520	Adds §§ 15.04.045, 15.04.065, 15.04.085, 15.04.095 and 15.04.315; and Ch. 15.14, Public Utilities (Repealed by C-7173)
C-6521	Amends § 15.20.060, sewers—use regulations (15.20)

Ordinance Number	Disposition
C-6522	Amends Part 18 of official Use District Map (Special)
C-6523	Adds subsection 70 to § 10.12.010, amends subsection 10.12.020 (45)(c), speed limits (10.12)
C-6524	Adds subsection L to § 10.32.110, preferential residential parking (10.32)
C-6525	Adds subsection M to § 10.32.110, preferential residential parking (10.32)
C-6526	Adds subsections 946 to § 10.20.070 and subsections 372—379 to § 10.34.040, vehicles and traffic (10.20, 10.34)
C-6527	Amends § 10.40.030 (35), truck routes (10.40)
C-6528	Adds subsection N to § 10.32.110, preferential residential parking (10.32)
C-6529	Adds subsection O to § 10.32.110, preferential residential parking (10.32)
C-6530	Amends § 6.04.070, animal shelter (6.04)
C-6531	Adds subsections 947 and 948 to § 10.20.070 and subsections 261—264 to § 10.24.070, vehicles and traffic (10.20, 10.24)
C-6532	Adds § 10.32.110P, preferential residential parking (10.32)
C-6533	Amends Title 21, zoning (21.10, 21.15, 21.21, 21.25, 21.27, 21.29, 21.30, 21.31, 21.32, 21.33, 21.34, 21.35, 21.36, 21.37, 21.38, 21.39, 21.40, 21.41, 21.42, 21.43, 21.44, 21.45, 21.46, 21.47, 21.51, 21.52, 21.53, 21.54, 21.61, 21.62, 21.63)
C-6534	Amends §§ 21.54.120 and 21.54.450, zoning (21.54)
C-6535	Amends Parts 9, 10, 15 and 16 of official Use District Map and § 2 of Ord. C-6493 (Special)
C-6536	Amends § 6 of Ord. C-5963, parking and business improvement area; repeals Ords. C-5076 and C-5080 (Special)
C-6537	Adds subsections 949—951 to § 10.20.070 and subsection 156 to 10.24.120, vehicles and traffic (10.20, 10.24)
C-6538	Adds subsection 49 to § 10.24.110, subsections 157 and 158 to § 10.24.120 and subsections 380—383 to § 10.34.040, vehicles and traffic (10.24,10.34)
C-6539	Amends Ch. 15.74, Franchises for Cable Communications Systems (15.74)
C-6540	Amends Part 9 of official Use District Map (Special)
C-6541	Amends § 3 of Ord. C-6494, budget (Special)
C-6542	Amends Part 10 of official Use District Map (Special)
C-6543	Amends § 10.38.090 (D), miscellaneous driving rules (10.38)
C-6544	Adds subsections 952—962 to § 10.20.070, subsection (O)(18) to § 10.24.020 and subsections 384—392 to § 10.34.040, vehicles and traffic; repeals § 10.14.020 (B) (10.14, 10.20, 10.24, 10.34)
C-6545	Temporary prohibition on variances relating to certain fence heights (Repealed by C-6571)
C-6546	Adds Div. XI to Ch. 21.25; amends §§ 21.10.060 (A), 21.21.301 (O)(3), Table 21-1 of § 21.21.301 and § 21.29.020 (A)(1), zoning (21.10, 21.21, 21.25, 21.29)
C-6547	Adds §§ 16.52.310 and 16.52.320, historic landmarks (16.52)
C-6548	Amends §§ 5.12.080 and 5.12.120 (A), (B), (C) and (D), alarm systems; repeals § 5.12.020 (I) (5.12)

Ordinance Number	Disposition
C-6549	Amends Ch. 21.47, Zoning (21.47)
C-6550	Adds subsections 963—975 to § 10.20.070, subsection 265 to § 10.24.070 and subsection 61 to § 10.24.080, traffic control (10.20, 10.24)
C-6551	Amends Part 15 of official Use District Map (Special)
C-6552	Authorizes agreement with Southern California Edison Company for gas and water meter reading (Special)
C-6553	Amends § 1.20.010 (D) and (E), political districts (1.20)
C-6554	Adds § 10.24.075, stopping, standing and parking (10.24)
C-6555	Adds § 16.52.330 and 16.52.340, historical landmarks (16.52)
C-6556	Exempts certain developments from sewer capacity charges (Special)
C-6557	Adds Ch. 16.22, El Dorado East Nature Center (16.22)
C-6558	Amends Part 17 of official Use District Map (Special)
C-6559	Amends § 2 of Ord. C-6405, commercial and industrial development prohibition (Special)
C-6560	Amends § 2 of Ord. C-6491, hotel and motel development limitation (Special)
C-6561	Amends § 2 of Ord. C-6496, departmental organization (Not codified)
C-6562	Amends § 4 of Ord. C-6544; repeals § 10.14.020 (B)(24), traffic control (10.14)
C-6563	Amends Ch. 21.47, Zoning (21.47)
C-6564	Adds subsections 94 and 95 to § 10.08.120, subsection B(25) to § 10.14.020, subsections 976—989 to § 10.20.070, subsection B(3) to § 10.24.140 and subsections 393—401 to § 10.34.040, vehicles and traffic (10.08, 10.14, 10.20, 10.24, 10.34)
C-6565	Adds § 2.63.055, demolition permits (2.63)
C-6566	Adds subsections 990—1019 to § 10.20.070, traffic control (10.20)
C-6567	Adds Ch. 18.18, Park and Recreation Facilities Fee (18.18)
C-6568	Special tax levy (Special)
C-6569	Adds subsection 1020 to § 10.20.070, traffic control; repeals subsections 944 and 945 of § 10.20.070 and repeals § 10.24.020(c)(16) and (17) (10.20)
C-6570	Adds Ch. 2.44, Human Relations Commission (2.44)
C-6571	Repeals Ord. C-6545 (Repealer)
C-6572	Adds § 10.32.110 (Q), stopping, standing and parking (10.32)
C-6573	Adds § 10.32.110 (R), stopping, standing and parking (10.32)
C-6574	Adds subsection 1021 to § 10.20.070 and subsection 62 to § 10.24.080, traffic control (10.20, 10.24)
C-6575	Amends § 2 of Ord. C-6493, residential development limitation (Special)
C-6576	Adds subsections 1022—1025 to § 10.20.070 and subsections 402—408 to § 10.34.040, traffic control (10.20, 10.34)
C-6577	Adds § 10.32.110 (5), stopping, standing and parking (10.32)
C-6578	Establishes Atlantic Avenue Planned Development District (21.37)

Ordinance Number	Disposition
C-6579	Amends § 2 of Ord. C-6180, Alamitos Land Planned Development District (Special)
C-6580	Amends § 5.60.050, special event permits (5.60)
C-6581	Adds § 2.03.075, fiscal impact analysis (2.03)
C-6582	Adds § 10.32.110 (U), stopping, standing and parking (10.32)
C-6583	Adds § 10.32.110 (T), stopping, standing and parking (10.32)
C-6584	Authorizes window-cleaning contract with Bielski Masonry and Window Cleaning Inc. (Special)
C-6585	Amends § 3 of Ord. C-5561, Long Beach Marina planned development (Special)
C-6586	Amends Part 9 of official Use District Map (Special)
C-6587	Conveyance of interests in real property (Special)
C-6588	Adds § 10.02.125; amends Ch. 10.32, Preferential Parking; repeals Ch. 10.33 (10.02, 10.32)
C-6589	Adds § 21.21.302, zoning (21.21)
C-6590	Adds Ch. 9.66, Assault Weapons Sale Prohibited (Repealed by C-6714)
C-6591	Amends § 21.10.080 (A), zoning (21.10)
C-6592	Amends §§ 10.20.070, 10.24.080, 10.24.110, 10.34.040, 10.34.050, 10.38.090 and 10.54.040, vehicles and traffic (10.20, 10.24, 10.34, 10.38, 10.54)
C-6593	Amends § 21.41.233, zoning (21.41)
C-6594	Amends § 2.03.090 (B), City Council (2.03)
C-6595	Adds §§ 21.10.090, 21.15.205, 21.15.1465, 21.15.1725, 21.25.211, 21.41.222, 21.41.228, 21.51.253 and 21.52.234, zoning; amends § 18.04.020, buildings and construction, amends §§ 20.14.010, 20.14.020, 20.14.030, 21.10.080, 21.15.1380, 21.25.103, 21.25.403, 21.27.020, 21.27.060, 21.27.070, 21.37.030, 21.44.400, 21.45.160, 21.51.205, 21.52.233, and 21.52.271, zoning; repeals §§ 21.42.271 (18.04, 20.14, 21.10, 21.15, 21.25, 21.27, 21.37, 21.41, 21.44, 21.45, 21.51, 21.52)
C-6596	Amends Parts 16, 17 and 24 of official Use District Map; repeals Ords. C-6255 and C-6357 (Special)
C-6597	Amends Part 17 of official Use District Map (Special)
C-6598	Amends §§ 10.24.080, 10.24.110 and 10.34.040, vehicles and traffic (10.24, 10.34)
C-6599	Amends § 2 of Ord. C-5562, planned development (Special)
C-6600	Authorizes receipt of training funds for peace officers standards and training public safety dispatcher program (Not codified)
C-6601	Amends Part 11 of official Use District Map (Special)
C-6602	Amends Part 11 of official Use District Map (Special)
C-6603	Amends Part 5 of official Use District Map (Special)
C-6604	Approves and adopts Long Beach Auto Mall redevelopment project (Special)
C-6605	Amends § 10.20.070 and 10.34.040, vehicles and traffic (10.20, 10.34)

Ordinance Number	Disposition
C-6606	Adds §§ 10.46.120—10.46.210, abandoned vehicles, adds §§ 18.12.132 and 18.19.195, buildings and construction; amends § 10.46.080, abandoned vehicles, and amends §§ 18.12.130, 18.16.180, 18.20.250, 18.32.240—18.32.270, 18.32.380(G), 18.36.250 and 18.44.310, buildings and construction (10.46, 18.12, 18.16, 18.19, 18.20, 18.32, 18.36, 18.44)
C-6607	Amends Part 11 of official Use District Map (Special)
C-6608	Amends Part 30 of official Use District Map (Special)
C-6609	Adds § 16.52.360 and 16.52.370, historical landmarks (16.52)
C-6610	Amends §§ 10.14.020, 10.24.080 and 10.34.040, parking for handicapped persons in public places (10.14, 10.24, 10.34)
C-6611	Adds Div. 5 to Ch. 3.52, Bonds and Public Improvement Financing (3.52)
C-6612	Adopts 1989-90 budget (Special)
C-6613	Adds § 16.52.350, historic landmarks (16.52)
C-6614	Adds § 16.52.380, historic landmarks (16.52)
C-6615	Amends § 10.20.070, special stops; repeals § 10.24.040 (1) (10.20, 10.24)
C-6616	Amends § 10.34.040, parking for handicapped persons in public places (Repealed by C-7469)
C-6617	Amends Part 30 of official Use District Map (Special)
C-6618	Adds Ch. 16.43, Airport Noise Mitigation (16.43)
C-6619	Temporarily limits development in Sunrise Park Area (Special)
C-6620	Amends § 2 of Ord. C-6496, departmental organization (Not codified)
C-6621	Amends Parts 21 and 22 of official Use District Map (Special)
C-6622	Adds §§ 5.24.150—5.24.220, boxing and wrestling exhibitions (5.24)
C-6623	Adds Ch. 9.55, Nuisance—Drug Activity in a Building or Place (Ch. 9.55 renumbered by Ord. C-6654)
C-6624	Amends Ch. 2.63, Cultural Heritage Commission (2.63)
C-6625	Amend; § 10.20.070, special stops (10.20)
C-6626	Amends §§ 10.20.070, 10.24.070, 10.24.080 and 10.34.040, vehicles and traffic (10.20, 10.24, 10.34)
C-6627	Amends §§ 3.80.146, 3.80.180 and 3.80.253, business license tax (3.80)
C-6628	Temporarily limits development in certain area (Special)
C-6629	Amends § 10.24.075, parking—restrictions (10.24)
C-6630	Temporarily limits development in certain area (Special)
C-6631	Amends §§ 10.20.070 and 10.34.040, vehicles and traffic (10.20, 10.34)
C-6632	Amends § 10.24.070, parking restrictions (10.24)
C-6633	Amends § 10.34.040, parking for handicapped persons in public places (Repealed by C-7469)
C-6634	Temporarily limits development in certain area (Special)
C-6635	Adds Ch. 8.94, AIDS Discrimination (8.94)
C-6636	Amends § 10.38.090, miscellaneous driving rules (10.38)

Ordinance Number	Disposition
C-6637	Amends § 16.16.010 (I), parks and beaches (16.16)
C-6638	Amends § 2.03.040 (A), City Council (2.03)
C-6639	Authorizes amendment to contract between City and California Public Employees Retirement System (Not codified)
C-6640	Amends §§ 10.20.070, 10.24.120 and 10.34.040, vehicles and traffic (10.20, 10.24, 10.34)
C-6641	Temporarily limits development in certain area (Special)
C-6642	Amends § 10.20.070, special stops (10.20)
C-6643	Adds §§ 16.52.390, 16.52.400, 16.52.410 and 16.52.420, historic landmarks (16.52)
C-6644	Amends §§ 10.08.120, 10.20.070 and 10.34.040, vehicles and traffic (10.08, 10.20, 10.34)
C-6645	Amends § 10.34.040, parking for handicapped person in public places (Repealed by C-7469)
C-6646	Establishes parking and business improvement area (Special)
C-6647	Authorizes agreement execution (Special)
C-6648	Adds Ch. 10.66, Control of Vehicular Cruising (10.66)
C-6649	Authorizes amendment to contract between City and California Public Employees Retirement System (Not codified)
C-6650	Temporarily limits development in certain area (Special)
C-6651	Amends Ch. 18.76, Report on Available Off-Street Parking Spaces upon Resale (18.76)
C-6652	Amends § 10.24.050, parking restrictions (10.24)
C-6653	Amends § 10.32.110, preferential parking (10.32)
C-6654	Renumbers Ch. 9.55 as Ch. 9.16, Drug Activity in a Building or Place (9.16)
C-6655	Amends § 10.20.070 and 10.34.040, vehicles and traffic (10.20, 10.34)
C-6656	Designates historic landmark district (Not codified)
C-6657	Amends Part 9 of official Use District Map (Special)
C-6658	Amends Part 29 of official Use District Map (Special)
C-6659	Adds Ch. 14.14; § 14.04.040, Streets and Sidewalks (14.04, 14.14)
C-6660	Amends §§ 10.12.010, 10.12.020, 10.20.070, 10.24.080 and 10.34.040, vehicles and traffic (10.12, 10.20, 10.24, 10.34)
C-6661	Amends § 10.24.070, parking—restrictions (10.24)
C-6662	Amends portion of Part 15 of official Use District Map (Special)
C-6663	Adds § 10.22.182, parking regulations (10.22)
C-6664	Amends § 3.48.040, claims and refunds and § 18.12.240, buildings and construction (3.48, 18.12)
C-6665	Adds §§ 16.52.450, 16.52.460 and 16.52.470, historic landmarks (16.52)
C-6666	Adds § 16.52.430, historic landmarks (16.52)
C-6667	Adds §§ 16.08.121 and 16.08.122; amends § 16.08.470, marinas (16.08)
C-6668	Temporarily limits development in certain area (Special)

Ordinance Number	Disposition
C-6669	Amends § 2 of Ord. C-6496, departmental organization (Not codified)
C-6670	Amends § 10.20.070, special stops (10.20)
C-6671	Amends § 10.32.140, preferential parking (10.32)
C-6672	Adds §§ 16.52.440, 16.52.480, 16.52.490, 16.52.500 and 16.52.510, historic landmarks (16.52)
C-6673	Designates historic landmark district (Not codified)
C-6674	Authorizes agreement execution (Special)
C-6675	Amends § 10.34.040, parking for handicapped persons in public places (Not codified)
C-6676	Amends Part 18 of official Use District Map (Special)
C-6677	Amends § 10.08.120, traffic-control devices (10.08)
C-6678	Approves water rates resolution (Special)
C-6679	Amends Part 9 of official Use District Map (Special)
C-6680	Amends §§ 18.52.030, 18.52.040, 18.52.050A and C, 18.52.060, 18.52.070, 18.52.090, 18.52.100, 18.52.120, 18.52.130, Ch. 18.56, 18.64.040, 18.64.080; repeals Ch. 18.60, buildings and construction (18.52, 18.64)
C-6681	Adds §§ 18.12.052, 18.12.053 and 18.16.065; amends §§ 18.04.020A, 18.08.020, 18.08.030, 18.08.040, 18.08.060, 18.08.070, 18.08.080, 18.08.090, 18.08.100, 18.08.130, 18.08.200, 18.08.220, 18.08.230, 18.12.010D2, 18.12.050, 18.12.060, 18.12.090A, 18.16.010, 18.16.060, 18.16.150, 18.24.010, 18.24.020, 18.24.200, 18.24.220, 18.36.010 and 18.40.010; repeals §§ 18.24.117, 18.24.140, 18.24.150, 18.40.021—18.40.026, 18.40.028 and 18.40.030, buildings and construction (18.04, 18.08, 18.12, 18.16, 18.24, 18.36, 18.40)
C-6682	Adds § 16.52.520—16.52.570, historic landmarks (16.52)
C-6683	Adds Ch. 16.43, Airport Noise Mitigation Regulations (16.43)
C-6684	Adds Ch. Nos. 21.48 and 21.60; adds (L) to and amends (A), (C), (D) and (E) of § 21.15.110; adds §§ 21.10.060(D), 21.15.1575, 21.15.2332, 21.25.503(C), 21.39.030, 21.39.230, 21.41.223(C), 21.41.233, 21.45.110(C), 21.52.210, 21.52.235, 21.52.265 and 21.52.279(I); amends Ch. Nos. 21.31 and 21.32 and §§ 21.15.1070, 21.15.2310, 21.15.2482, 21.15.2484, 21.25.502, 21.25.507, 21.27.070(E)(2), 21.27.130, 21.33.110 (Table 33-1), 21.34.110 (Table 34-1), 21.36.110 (Table 36-1), 21.41.216 (Tables 41-1A and 41-1C), 21.41.226, 21.41.243(A), 21.41.251 (text and Table 41-4), 21.41.253, 21.43.020 (Table 43-1), 21.47.020 (Table 47-1) and 21.52.239), zoning (21.10, 21.15, 2.25, 2.27, 21.31, 21.32, 21.33, 21.34, 21.36, 21.39, 21.41, 21.43, 21.45, 21.47, 21.52, 21.60)

Ordinance Number	Disposition
C-6685	Adds § 3.64.045, transient occupancy tax (3.64)
C-6686	Amends §§ 20.32.030, 20.32.130, 20.32.170, 20.32.200, 20.32.240 and titles of Articles 2 and 3 of Ch. 32; repeals §§ 20.32.020(F), 20.32.070, 20.32.080, 20.32.570, 20.32.590, 20.32.600, 20.32.610, 20.32.620, 20.32.630, 20.32.640, 20.32.270—20.32.360, 20.32.370—20.32.500, subdivisions (20.32)
C-6687	Amends Parts 5, 6, 8, 9, 10, 11, 12, 14, 15, 16, 20, 22, 23, 28, 29 and 30 of official Use District Map (Special)
C-6688	Amends §§ 10.20.070, 10.24.020(C)(9), 10.24.080(47), 10.24.110(19), 10.24.020(C) and 10.24.100; repeals § 10.24.110(20), parking restrictions (10.24)
C-6689	Amends Ord. C-6628, temporarily limits development in certain areas (Special)
C-6690	Amends § 18.64.060, sandblasting (18.64)
C-6691	Adds §§ 16.52.590—16.52.620, historic landmarks (16.52)
C-6692	Amends § 2 of Ord. C-6630, temporary limit on development (Special)
C-6693	Repeals § 18.24.116 (Repealer)
C-6694	Amends § 16.16.010(I), parks and beaches (16.16)
C-6695	Amends §§ 10.08.120 and 10.34.040, traffic and parking (10.08, 10.34)
C-6696	Amends Ch. 18.48, Fire Code (18.48)
C-6697	Adds §§ 10.14.020(A)(94) and (95) and 10.24.020(C)(28) and (29), traffic control (10.14, 10.24)
C-6698	Adds §§ 10.20.070(1082—1091), 10.24.100(38) and 10.34.040(471, 472); repeals § 10.24.110(21), traffic control (10.20, 10.24, 10.34)
C-6699	Adds § 16.52.580, historic landmarks (16.52)
C-6700	Adds §§ 10.20.070(1092—1095), stop intersections (10.20)
C-6701	Temporarily limits development in certain areas (Special)
C-6702	Amends Ord. C-6628, temporary limitation on development (Special)
C-6703	Amends § 10.32.110, preferential residential parking (10.32)
C-6704	Designates historic landmark district (Not codified)
C-6705	Moratorium on issuance of building permits (Special)
C-6706	Temporarily limits development in certain areas (Special)
C-6707	Adds § 16.16.120, fishing (16.16)
C-6708	Adds §§ 10.20.070(1096—2003), 10.24.070(271) and (272) and 10.34.040(473—475), traffic control (10.20, 10.24, 10.34)
C-6709	Temporarily limits development in certain areas (Special)
C-6710	Amends § 2 of Ord. C-6496, departmental organization (Not codified)
C-6711	Adds §§ 10.20.070(2004) and 10.24.075(40), traffic control (10.20, 10.24)
C-6712	Amends Part 28 of official Use District Map (Special)
C-6713	Adds § 15.40.075, gas utility charges (15.40)
C-6714	Repeals Ch. 9.66, Assault Weapons (Repealer)

Ordinance Number	Disposition
C-6715	Amends § 2 of Ord. C-6641, temporary limitation on development and construction in certain areas (Special)
C-6716	Authorizes amendment to contract between Public Employees' Retirement System and the City Council (Not codified)
C-6717	Amends Parts 16 and 23 of official Use District Map (Special)
C-6718	Amends Part 9 of official Use District Map (Special)
C-6719	Amends Ord. C-6085, amending Part 17 of official Use District Map (Special)
C-6720	Amends § 2.03.040 (A), City Council (2.03)
C-6721	Amends § 10.20.070, 10.24.070, 10.24.080 and 10.34.040, vehicles and traffic (10.20, 10.24, 10.34)
C-6722	Adds § 10.38.111, miscellaneous driving miles (10.38)
C-6723	Adds Division VI to Ch. 3.52, Bonds and Public Improvement Financing (3.52)
C-6724	Amends Ord. C-6641, temporarily limiting development in a certain area (Special)
C-6725	Amends § 10.24.070, parking restrictions (10.24)
C-6726	Amends Part 10 of official Use District Map (Special)
C-6727	Temporarily prohibits development in certain area (Special)
C-6728	Amends § 10.24.075, parking restrictions (10.24)
C-6729	Amends Part 9 of official Use District Map (Special)
C-6730	Adds §§ 16.52.640 and 16.52.650, historic landmarks (16.52)
C-6731	Temporarily prohibits development in certain area (Special)
C-6732	Adds § 16.52.660, historic landmarks (16.52)
C-6733	Amends Part 28 of official Use District Map (Special)
C-6734	Amends § 10.20.070, special stops; repeals subsections 295, 377, 431 and 449 of § 10.34.040 (10.20, 10.34)
C-6735	Amends §§ 10.20.070 and 10.34.040, vehicles and traffic (10.20, 10.34)
C-6736	Amends 1989—1900 budget (Special)
C-6737	Amends Parts 10, 11, 15 and 16 of official Use District Map (Special)
C-6738	Amends agreement for window washing services (Special)
C-6739	Amends Part 4 of official Use District Map (Special)
C-6740	Adds § 10.24.020 (O)(30), parking restrictions (10.24)
C-6741	Amends § 10.32.110, preferential parking (10.32)
C-6742	1990-1991 budget (Special)
C-6743	Amends Ord. C-6628, Temporary Limitation on Development in Certain Area (Special)
C-6744	Amends § 3.68.050, utility users tax (3.68)
C-6745	Amends § 3.68.040 (A) and 3.68.060 (A), utility users tax (3.68)
C-6746	Amends Parts 22 and 28 of official Use District Map (Special)
C-6747	Amends Parts 4, 5, 10 and 11 of official Use District Map (Special)
C-6748	Amends Ch. 18.68, Earthquake Hazard Regulations (18.68)
C-6749	Amends § 16.08.850, marinas (16.08)
C-6750	Adds § 2.03.085, city council (2.03)

Ordinance Number	Disposition
C-6751	Amends § 3.80.221(A) business license tax (3.80)
C-6752	Temporary prohibition on development within specified area (Special)
C-6753	Amends Ord. C-6496, departmental organization (Not codified)
C-6754	Adds §§ 10.14.020(B)(27—29) 10.20.070 (2042—2044), 10.24.070 (276—279) and 10.24.110 (52), vehicles and traffic (10.14, 10.20, 10.24)
C-6755	Amends §§ 21.35.110 and 21.41.216, zoning (21.35, 21.41)
C-6756	Adds §§ 10.08.120 (99) 10.20.070 (2045—2050), 10.24.100 (39) and 10.34.040 (480—494), vehicles and traffic; repeals §§ 10.24.120(79)(10.08, 10.20, 10.24, 10.34)
C-6757	Amends §§ 5.20.060, 5.20.080 and 5.20.180, bingo regulations (5.20)
C-6758	Temporary prohibition on development within specified area (Special)
C-6759	Amends Ord. C-6701, temporary limitation on development within specified area (Special)
C-6760	Amends Parts 15 and 22 of official Use District Map (Special)
C-6761	Amends Ord. C-5847, Carroll Park Historic Landmark District (Not codified)
C-6762	Adds § 16.52.630, historic landmarks (16.52)
C-6763	Adds § 16.52.670, historic landmarks (16.52)
C-6764	Temporary prohibition on development within specified area (Special)
C-6765	Amends Ords. C-6630 and C-6692, temporary limitation on development and construction within specified area (Special)
C-6766	Adds § 2.21 .050, representation on board of directors of the Metropolitan Water District of Southern California (2.21)
C-6767	Temporary limitation on demolition of residential dwellings within specified area (Special)
C-6768	Temporary limitation on construction or expansion of certain commercial uses in specified area (Special)
C-6769	Adds Ch. 8.58, graffiti abatement; repeals § 8.76.192 (8.58)
C-6770	Adds § 9.56.040 and Ch. 9.57, public peace, morals and welfare (9.56, 9.57)
C-6771	Adds Ch. 9.36, loitering for drug activities or graffiti (9.36)
C-6772	Adds §§ 10.52.040(H) and 10.54.040(CC), vehicles and traffic (10.52, 10.54)
C-6773	Temporarily limits development in certain areas (Repealed by C-7031)
C-6774	Designates Willmore City historic landmark district (Special)
C-6775	Amends Part 6 of Official Use District Map (Special)
C-6776	Adds Ch. 18.19, airport traffic study area traffic fee and mitigation requirements (18.19)
C-6777	Amends Ord. C-5621, Long Beach Business Center planned development district (Special)
C-6778	Amends Ord. C-5879, Official Use District Map amendment (Special)
C-6780	Amends Ord. C-6040, Official Use District Map amendment (Special)
C-678 I	Amends Ord. C-6085, Official Use District Map amendment (Special)

Ordinance Number	Disposition
C-6782	Amends Ord. C-6180, Official Use District Map amendment (Special)
C-6783	Amends Ord. C-6223, Official Use District Map amendment (Special)
C-6784	Amends Ord. C-6255, Official Use District Map amendment (Special)
C-6785	Amends Ord. C-6455, Official Use District Map amendment (Special)
C-6786	Amends portion of Part 17 of Official Use District Map; establishes Willow Street Center planned development district (Special)
C-6787	Amends portion of Part 23 of Official Use District Map; establishes the Pacific Theaters planned development district (Special)
C-6788	Conditional approval of six applications for development agreements in vicinity of airport (Special)
C-6789	Adds § 8.76.205, property maintenance and § 18.20.390, buildings and construction (8.76, 18.20)
C-6790	Repeals Ch. 14.38 (Repealer)
C-679l	Amends § 2.87.130, public works contracts and wages (2.87)
C-6792	Amends § 2.87.130, public works contracts and wages (2.87)
C-6792	Temporary prohibition on specified development in certain area (Special)
C-6793	Amends Ord. C-6628, limitation of development in certain area (Special)
C-6794	Adds Ch. 18.80, demolition of historic landmarks (18.80)
C-6795	Amends District I of § 10.32.110, preferential parking (10.32)
C-6796	Amends §§ 10.24.100 (35) and 10.24.110 (19), parking restrictions (10.24)
C-6797	Adds §§ 10.14.020 (A) (96)—(98), 10.20.070 (2051)—(2055), 10.24.075 (43) and 10.34.040 (495)—(501); amends §§ 10.24.080 (47) and 10.34.040 (476), vehicles and traffic; repeals § 10. 14.020 (B)(27)—(29) (10.14, 10.20, 10.24, 10.34)
C-6798	Adds § 2.03.065, city council (2.03)
C-6799	Amends Parts 10 and 11 of Official Use District Map (Special)
C-6800	Amends Ord. C-6706, temporary limitation on development in certain area (Special)
C-6801	Temporary prohibition on specified auto-motive uses in certain areas (Special)
C-6802	Adds §§ 10.20.070 (2056)—(2058), 10.24.020 (C)(31), 10.24.075 (43), 10.24.080 (72)—(74), 10.24.110 (53) and 10.34.040 (502)—(505), vehicles and traffic (10.20, 10.24, 10.34)
C-6803	Amends § 2 of Ord. C-6496, departmental organization (Not codified)
C-6804	Amends § 3 of Ord. C-6742, 1990—91 budget (Special)
C-6805	Amends § 3.68.080, utility users tax (3.68)
C-6806	Amends Part 10 of Official Use District Map (Special)
C-6807	Amends Ord. C-5562, Official Use District Map amendment (Special)
C-6808	Amends Part 10 of Official Use District Map (Special)
C-6809	Amends Part 29 of Official Use District Map (Special)
C-6810	Adds § 10.20.070(2059), 10.24.100(40) and 10.34.040(506)—(513), vehicles and traffic (10.20, 10.24, 10.34)

Ordinance Number	Disposition
C-6811	Amends District I of § 10.32.110, preferential parking (10.32)
C-68 12	Amends § 2.24.020, 2.24.030, 2.24.050, 2.24.060 and 2.24.070, board of health and human services (2.24)
C-68 13	Amends Part 15 of Official Use District Map (Special)
C-68 14	Amends Parts 22 and 28 of Official Use District Map (Special)
C-6815	Amends District I of § 10.32.110, preferential parking (10.32)
C-6816	Authorizes agreement for acquisition of real property (Special)
C-6817	Amends Ord. C-6630, temporary limitation on development in certain area (Special)
C-6818	Adds § 16.52.680, historic landmarks (16.52)
C-6819	Adds Subsection (I) to § 10.52.040 and Subsection (DD) to § 10.54.040, vehicles and traffic (10.52, 10.54)
C-6820	Amends Ord. C-6768, temporarily limiting certain construction or expansion (Special)
C-6821	Amends § 10.12.010, 10.12.020, 10.20.070, 10.24.075, 10.24.080 and 10.24.100, vehicles and traffic (10.12, 10.20, 10.24)
C-6822	Adds § 21.15.065, 21.15.2275 and 21.52.200.5; amends § 21.15.1330, 21.15.1335, 21.15.2250, 21.15.2430, 21.27.060, 21.31.201, 21.31.215, 21.31.230, 21.31.240, 21.31.245, 21.32.110, 21.32.220, 21.34.220, 21.41.211, 21.41.251, 21.44.090, title of § 21.52.233 and Ord. 21.63, zoning (21.15, 21.27, 21.31, 21.32, 21.34, 21.41, 21.44, 21.52, 21.63)
C-6823	Amends § 20.06.030, 20.06.040, 20.14.030, 20.24.010 and 20.24.040, subdivisions (20.06, 20.14, 20.24)
C-6824	Adds Ord. 18.17, transportation improvement fee (Not codified)
C-6825	Temporarily suspends enforcement of Chs. 20.32, subdivisions and Ch. 21.60, zoning (Special)
C-6826	Amends § 15.13.030, sewer rates (Repealed by C-7173)
C-6827	Amends Part 5 of Official Use District Map (Special)
C-6828	Amends Part 10 of Official Use District Map (Special)
C-6829	Amends Ord. 21.60, zoning (21.60)
C-6830	Amends Ord. C-5833, amending Part 9 of Official Use District Map (Special)
C-6831	Extends Ord. C-6824, transportation improvement fee (Not codified)
C-6832	Amends § 2 of Ord. C-6825, temporary suspension of enforcement of Chs. 20.32 and 21.60(Special)
C-6833	Amends § 2 of Ord. C-6758, temporary prohibition of development in certain area (Special)
C-6834	Designates Sunrise Boulevard Historic Landmark District (Not codified)
C-6835	Amends Ord. C-5869, designating Bluff Park Historic Landmark District (Not codified)
C-6836	Transportation improvement fee (18.17)
C-6837	Amends § 3.80.213, 3.80.216, 3.80.220, 3.80.226, 3.80.230, 3.80.233, 3.80.236, 3.80.240, 3.80.243.3.80.246, 3.80.250, 3.80.253 and 3.80.451, business license tax (3.80)

Ordinance Number	Disposition
C-6838	Amends Ord. C-6709, temporary limitation on development in certain areas (Special)
C-6839	Amends Ord, C-6727, temporary prohibition on development in certain area (Special)
C-6840	Amends Ord. C-6764, temporary prohibition on development in certain area (Special)
C-6841	Authorizes amendment to agreement with Millar elevator service (Special)
C-6842	Amends § 10.20.070, 10.24.070, 10.24.080, 10.24.100, 10.24.110 and 10.34.040, vehicles and traffic (10.20, 10.24, 10.34)
C-6843	Confers powers and duties upon board of harbor commissioners (Not codified)
C-6844	Adds § 16.52.690, historic landmarks (16.52)
C-6845	Amends § 10.24.070, 10.24.080, 10.24.110 and 10.34.040, vehicles and traffic (10.24, 10.34)
C-6846	Amends Part 22 of Official Use District Map (Special)
C-6847	Amends § 10.32.110, preferential parking (10.32)
C-6848	Extends Ord. C-6824, transportation improvement fee (Not codified)
C-6849	Adds § 18.40.028, plumbing code (Repealed by C-7622)
C-6850	Amends portions of Parts 10 and 11 of Official Use District Map (Special)
C-6851	Amends portion of Part 22 of Official Use District Map (Special)
C-6852	Amends § 10.24.100, 10.24.120 and 10.34.040, vehicles and traffic (10.24, 10.34)
C-6853	Extend agreement with Mitsubishi Elevator Company (Special)
C-6854	Amends portion of Part 15 of Official Use District Map (Special)
C-6855	Amends Ord. C-6773 temporarily limiting development in certain areas (Repealed by C-7031)
C-6856	Amends Long Beach/405 Retail Center Redevelopment Project (Repealed by C-7264)
C-6857	Amends § 2 of Ord. C-6825, temporary suspension of enforcement of Chs. 20.32 and 21.60(Special)
C-6858	Approves Resolution No. WD-990 establishing an Emergency Water Conservation Plan (Special)
C-6859	Amends Ord. C-6701, temporary limitation or development in certain areas (Special)
C-6860	Amends portion of Part 9 of Official Use District Map (Special)
C-6861	Amends Ord. C-6727, temporary prohibition on development in certain area (Special)
C-6862	Adds § 5.58.075; amends § 5.58.090, massage parlors (5.58)
C-6863	Approves Resolution No. WD-989 establishing sewer service rates and charges (Special)
C-6864	Approves Resolutions WD-988 and WD-992 establishing water service rates (Special)
C-6865	Amends portion of Parts 10 and 11 of Official Use District Map (Special)
C-6866	Amends portion of Part 29 of Official Use District Map (Special)
C-6867	Amends portion of Part 28 of Official Use District Map (Special)
C-6868	Amends Ord. 21.60, zoning repeals § 20.32.560, 20.32.580, 20.32.650, 20.32.660 and 20.32.670(21.60)
C-6869	Amends Part 9 of Official Use District Map (Special)

Ordinance Number	Disposition
C-6870	Contractual maintenance agreement (Special)
C-6871	Amends 1990-91 budget (Special)
C-6872	Amends Ord. 10.69, parking restricted to senior citizens (10.69)
C-6873	Amends § 10.20.070, 10.24.070, 10.24.080, 10.24.100, 10.34.040 and 10.34.050, vehicles and traffic (10.20, 10.24)
C-6874	Establishes moratorium on enforcement activities relating to zoning violations in connection with fences in front setback areas (Special)
C-6875	Amends § 10.20.070, special stops (10.20)
C-6876	Adds § 6.08.015; amends § 6.16.210(A), animals (6.08, 6.16)
C-6877	Amends portion of Part 10 of Official Use District Map (Special)
C-6878	Amends § 2 of Ord. C-6825, temporary suspension of enforcement of Chs. 20.32 and 21.60(Special)
C-6879	Amends § 5.30.020, cigarette vending machines; amends Ord. 8.68, smoking in public places (Repealed by C-6923)
C-6880	Provides for termination of temporary limitation on development in specific area (Special)
C-6881	Amends § 18.28.010 and 18.32.210, buildings and construction (18.28, 18.32)
C-6882	Amends § 10.24.080 and 10.24.100, parking restrictions (10.24)
C-6883	Adds § 10.48.100, bicycles; amends § 10.48.070 and 10.52.040, vehicles and traffic (10.48, 10.52)
C-6884	Adds § 16.04.100, piers (16.04)
C-6885	Amends portion of Part 15 of official Use District map (Special)
C-6886	Amends § 21.37.020, zoning (21.37)
C-6887	Amends § 10.32.110, preferential parking (10.32)
C-6888	Amends § 10.08.120, 10.20.070, 10.24.020, 10.24.070, 10.24.100, 10.24.110, 10.24.120, 10.34.040 and 10.34.050, vehicles and traffic (10.08, 10.20, 10.24, 10.34)
C-6889	Authorizes temporary sale of alcoholic beverages in Shoreline Aquatic Park (Special)
C-6890	Temporary limitation on certain residential development (Repealed by 6926)
C-6891	Amends § 2 of Ord. C-6825, temporary suspension of enforcement of Chs. 20.32 and 21.60(Special)
C-6892	Amends § 10.20.070, special stops (10.20)
C-6893	Amends § 106 of personnel ordinance (Not codified)
C-6894	Amends Ord. 21.60, Zoning (21.60)
C-6895	Adds § 21.15.065, 21.15.445, 21.15.2005, 21.15.2385, 21.51.203, 21.52.270 and Ord. 21.55; amends § 21.10.080, 21.15.240, 21.21.105, 21.21.301, 21.25.303, 21.25.403, 21.25.508, 21.31.110, 21.31.201, 21.31.205, 21.31.215, 21.32.110, 21.32.120, 21.33.110, 21.34.110, 21.41.140, 21.41.231, 21.41.251, 21.42.040, 21.52.243, 21.53.109 and 21.53.113, zoning; repeals § 14.08.260, 21.42.050 and 21.51.215(21.10, 21.15, 21.21, 21.25, 21.31, 21.32, 21.33, 21.34, 21.41, 21.42, 21.51, 21.52, 21.53, 21.55)

Ordinance Number	Disposition
C-6896	Adds § 18.12.161 and 18.12.202; amends § 18.12.060, 18.12.120, 18.12.130, 18.12.140, 18.12.160, 18.12.170, 18.12.180, 18.12.190, 18.12.230, 18.16.080, 18.32.240, 18.32.250, 18.32.260, 18.32.330, 18.36.250, 18.44.310 and 18.44.330, buildings and construction (18.12, 18.16, 18.32, 18.36, 18.44)
C-6897	Adds § 3.68.170; amends § 3.68.030, 3.68.040, 3.68.050 and 3.68.060, utility users tax (3.68)
C-6898	1991-92 budget (Special)
C-6899	Amends § 10.08.120, 10.20.070, 10.24.080 and 10.34.040, vehicles and traffic (10.08, 10.20, 10.24, 10.34)
C-6900	Amends § 10.24.100, parking restrictions (10.24)
C-6901	Amends § 3.80.233, business license tax (3.80)
C-6902	Temporary limitation on issuance of permits for refuse removal (Special)
C-6903	Amends § 2 of Ord. C-6496, departmental organization (Not codified)
C-6904	Authorizes amendment to agreement for window washing service (Special)
C-6905	Amends § 15.36.020, 15.36.030, 15.36.040, 15.36.050, 15.36.060, 15.36.071, 15.36.072 and 15.36.100, gas rates; repeals § 16.36.110(15.36)
C-6906	Authorizes amendment of contract between the City and the PERS (Special)
C-6907	Amends portion of Part 9 of official Use District Map (Special)
C-6908	Amends § 2.06.020, City officer (2.06)
C-6909	Amends § 2 of Ord. C-6758, temporary prohibition on development within specified area (Special)
C-6910	Amends § 2 of Ord. C-6890, temporary limitation on certain residential development (Repealed by 6926)
C-6911	Amends § 2.03.020(B) and 2.03.040(A), City Council (2.03)
C-6912	Amends § 10.24.080, 10.20.070 and 10.34.040, vehicles and traffic (10.20, 10.24, 10.34)
C-6913	Amends § 5.60.050, parades, special events and filming activities (5.60)
C-6914	Amends § 10.14.020, 10.20.070, 10.24.070 and 10.34.040, vehicles and traffic (10.14, 10.20, 10.24, 10.34)
C-6915	Amends Ord. 6255, amends Parts 16, 17 and 24 of official Use District Map; repeals Ord. C-6596(Special)
C-6916	Amends Ord. 8.68, Smoking in Pub-lie Places; amends § 5.30.020, cigarette vending machines (5.30)
C-6917	Amends Ord. 1.20, Political Districts (1.20)
C-6918	Amends § 2 of Ord. C-6773, temporarily limits development in certain areas (Repealed by C-7031)
C-6919	Adds Ord. 1.27, School Board Districts (1.27)
C-6920	Adds Oh 865, Mobile Source Air Pollution Reduction (8.65)
C-6921	Adds § 16.52.700, 16.52.710 and 16.52.720, historic landmarks (16.52)
C-6922	Adds § * 8.60.082, 8.60.084, 8.60.086, 8.60.087, 8.60.088 and 8.60.089; amends § 8.60.080 and 8.60.090, refuse (8.60)

Ordinance Number	Disposition
C-6923	Repeals Ord. C-6879(Repealer)
C-6924	Tax levy (Special)
C-6925	Approves applications for development agreement (Special)
C-6926	Rezone; repeals Ords. 6890 and 6910(Special)
C-6927	Adds § 2.15 to Ord. 3548(Not codified)
C-6928	Adds § 16.52.730, historic landmarks (16.52)
C-6929	Amends § 10.20.070, 10.24.070, 10.24.120 and 10.34.040; repeals § 10.24.110.24 and 10.34.040.204, .210, .328, .364 and .541, vehicles and traffic (10.20, 10.24, 10.34)
C-6930	Adds Ord. 2.99, Records Reproduction Cost Recovery; repeals § 2.06.030 and 2.06.040(2.99)
C-6931	Rezone (Special)
C-6932	Amends § 1.20.010, political districts (1.20)
C-6933	Adds § 21.15.705, 21.25.212, 25.25.412 and 21.31.242; amends § 20.32.040, 21.15.1330, 21.15.3160, 21.21.105, 21.25.506, 21.25.508, 21.27.060, 21.30.010, 21.31.040, 21.31.110, 21.31.201, 21.31.201, 21.31.215, 21.31.220, 21.31.230, 21.31.245, 21.32.020, 21.32.110, 21.32.205, 21.32.210, 21.32.220, 21.32.235, 21.41.213, 21.41.216, 21.41.222, 21.41.233, 21.42.050, 21.43.020, 21.46.080, 21.60.420, 21.60.440 and 21.60.640, zoning; repeals § 21.41.236 and 21.41.241 (20.32, 21.15, 21.21, 21.25, 21.27, 21.30, 21.31, 21.32, 21.41, 21.42, 21.43, 21.46, 21.60)
C-6934	Rezone (Special)
C-6935	Rezone (Special)
C-6936	Extends and amends § 5 of Ord. 3582, grants gas franchise (Special)
C-6937	Amends §§ 10.20.070, 10.24.020 and 10.34.040, vehicles and traffic (10.20, 10.24, 10.34)
C-6938	Rezone (Special)
C-6939	Amends §§ 10.14.020, 10.20.070, 10.24.100 and 10.34.040, traffic control (10.14, 10.20, 10.24, 10.34)
C-6940	Amends § 10.32.110, preferential parking (10.32)
C-6941	Amends §§ 2.03.020 and 2.03.040, City Council (2.03)
C-6942	Amends §§ 10.24.100, 10.24.110 and 10.24.120, parking restrictions (10.24)
C-6943	Amends § 10.32.020, preferential parking (10.32)
C-6944	Amends § 2 of Ord. 5562, planned development district (Special)
C-6945	Rezone (Special)
C-6946	Amends §§ 10.20.070 and 10.34.020, vehicles and traffic (10.20, 10.34)
C-6947	Adds §§ 16.52.740, 16.52.750 and 16.52.760, historic landmarks (16.52)
C-6948	Amends § 10.30.050, beach area parking lots (10.30)
C-6949	Rezone (Special)
C-6950	Rezone (Special)
C-6951	Rezone (Special)
C-6952	Adds § 20.32.025, subdivisions (20.32)
C-6953	Amends Res. No. WD-952, emergency water conservation plan (Not codified)
C-6954	Approves redevelopment plan (Special)
C-6955	Adds § 1.25.020, nominating petitions (1.25)

Ordinance Number	Disposition
C-6956	Rezone (Special)
C-6957	Amends § 10.32.110, preferential parking (10.32)
C-6958	Amends §§ 10.20.070, 10.24.100, 10.24.120 and 10.34.040, vehicles and traffic (10.20, 10.24, 10.34)
C-6959	Rezone (Special)
C-6960	Adds § 1.32.060; amends § 1.32.020, general penalty (1.32)
C-6961	Amends Ch. 2.63, Cultural Heritage Commission (2.63)
C-6962	Adds Ch. 10.70, Golf Cart Crossing Zones (10.70)
C-6963	Amends Table 31-2B of § 21.31.201, zoning (21.31)
C-6964	Amends §§ 10.20.070, 10.24.100 and 10.34.040, vehicles and traffic; repeals §§ 10.24.110(31) and 10.34.040(41), (53), (115), (180), (278), (311), (452) and (474) (10.20, 10.24, 10.34)
C-6965	Amends § 10.32.110, preferential parking (10.32)
C-6966	Amends Ord. C-6902, temporary limitation on issuance of permits for refuse removal (Special)
C-6967	Rezone (Special)
C-6968	Rezone (Special)
C-6969	Amends §§ 10.20.070 and 10.24.070, vehicles and traffic (10.20, 10.24)
C-6970	Amends agreement with Miller Elevator Service (Special)
C-6971	Amends § 2.63.070, Cultural Heritage Commission (2.63)
C-6972	Designates Lowena Drive Historic Landmark District (Not codified)
C-6973	Park fee credit statement for Shupell Industries (Special)
C-6974	Amends § 2.03.040, City Council (2.03)
C-6975	Adds § 8.60.081, amends §§ 8.60.080, 8.60.082, 8.60.087 and 8.60.089, refuse (8.60)
C-6976	Extends gas franchise terms (Special)
C-6977	Extends agreement with Mitsubishi Elevator Company (Special)
C-6978	Extends temporary prohibition on development within certain area (Special)
C-6979	Amends Ch. 5.58, Massage (5.58)
C-6980	Amends Ord. C-6886 to amend PD-29 relating to Subarea 9 (Repealed by C-7115)
C-6981	Adds § 10.12.030, speed limits (10.12)
C-6982	Amends §§ 10.12.010, 10.24.070, 10.24.075 and 10.34.040, vehicles and traffic (10.12, 10.24, 10.34)
C-6983	Amends §§ 10.20.070 and 10.24.070, vehicles and traffic (10.20, 10.24)
C-6984	Adds § 9.42.110, trespassing (9.42)
C-6985	Conditional approval of application for amendment to certain development agreement (Not codified)
C-6986	Amends §§ 3.80.146, 3.80.233 and 3.80.451, business license tax (3.80)
C-6987	Amends §§ 10.20.070 and 10.34.040, vehicles and traffic (10.20, 10.34)
C-6988	Adds §§ 16.52.780 and 16.52.790, historic landmarks (16.52)
C-6989	Amends § 2 of Ord. C-5562 Downtown Shoreline Planned Development District (Special)
C-6990	Amends Ord. C-6886, Long Beach Boulevard Planned Development Plan (PD-29) (Repealed by C-7115)

Ordinance Number	Disposition
C-6991	Rezone (Special)
C-6992	Amends Ord. C-5621, Long Beach Business Center Planned Development District (Not codified)
C-6993	Temporary prohibition on residential development in certain area (Special)
C-6994	Amends § 5.58.150, massage (5.58)
C-6995	Amends §§ 10.20.070 and 10.24.080, vehicles and traffic (10.20, 10.24)
C-6996	Interim regulations relating to reconstruction (Not codified)
C-6997	Interim regulations regarding abatement of damaged and destroyed structures (Not codified)
C-6998	Grants additional power to Board of Harbors (Special)
C-6999	Adds § 16.52.800, historic landmarks (16.52)
C-7000	Repeals Ch. 3.90 (Repealer)
C-7001	Adds § 5.80.045; amends § 5.80.010, vehicles for hire (5.80)
C-7002	Authorizes issuance of exclusive use permit (Special)
C-7003	Authorizes issuance of exclusive use permit (Special)
C-7004	Adds §§ 18.16.012, 18.40.025 and 18.56.050; amends §§ 18.08.020, 18.08.050, 18.08.060, 18.08.070, 18.08.140, 18.08.150, 18.08.160, 18.08.170, 18.08.200, 18.08.220, 18.08.230, 18.12.010, 18.16.060, 18.16.065, 18.24.010, 18.24.030, 18.24.050, 18.24.070, 18.24.080, 18.24.200, 18.36.010 and 18.40.010, buildings and construction; repeals §§ 18.08.130, 18.08.190, 18.08.240, 18.08.260, 18.24.100 and 18.24.110 (18.08, 18.12, 18.16, 18.24, 18.36, 18.40)
C-7005	Temporary limitation of development within certain area (Special)
C-7006	Amends § 10.20.070, 10.24.070, 10.24.120 and 10.34.040, vehicles and traffic (10.20, 10.24, 10.34)
C-7007	Amends § 10.34.050, parking for handicapped persons in public places (Repealed by C-7469)
C-7008	Amends § 3.64.035, transient occupancy tax (3.64)
C-7009	1992-93 budget (Special)
C-7010	Adds Ord. 1.26, Mass Mailings (1.26)
C-7011	Amends § 10.20.070, 10.24.040, 10.24.070, 10.24.080 and 10.34.040, vehicles and traffic (10.20, 10.24, 10.34)
C-7012	Water and sewer service rates and charges (Not codified)
C-7013	Amends § 2 of Ord. C-6496, departmental organization (Not codified)
C-7014	Adds § 18.12.101 and 18.12.141, buildings and construction (18.12)
C-7015	Rezone (Special)
C-7016	Amends Ord. C-6578, Atlantic Avenue planned development district (Not codified)
C-7017	Amends § 16.08.650, marinas (16.08)
C-7018	Amends § 1.20.010, political districts (1.20)
C-7019	Adds § 15.40.020; amends § 15.40.010, 15.40.040, 15.40.050, 15.40.090 and 15.40.110, gas regulations (15.40)
C-7020	Adds Ord. 3.95, Special Police Tax (Not codified)
C-7021	Amends § 15.74.205, franchises for cable communications systems (15.74)
C-7022	Amends § 10.24.020, 10.24.100, 10.24.120 and 10.34.040, vehicles and traffic (10.24, 10.34)

Ordinance Number	Disposition
C-7023	Amends § 10.32.110, preferential parking (10.32)
C-7024	Amends § 2 of Ord. C-6773, temporarily limits development in certain areas (Repealed by C-7031)
C-7025	Amends § 2.42.020, Golf Commission (2.42)
C-7026	Amends § 2 of Ord. C-6758, temporary prohibition on development within specified area (Special)
C-7027	Adds § 2A to Ord. C-7021, franchises for cable communications systems (15.74)
C-7028	Amends § 10.20.070, 10.24.100 and 10.34.040, vehicles and traffic (10.20, 10.24, 10.34)
C-7029	Amends § 10.32.110, preferential parking (10.32)
C-7030	Rezone (Special)
C-7031	Repeals Ords. 6773, 6855, 6918 and 7024(Repealer)
C-7032	Amends § 21.10.030(A), 21.15.350, 21.15.480, 21.15.490, 21.15.910, 21.15.1620, 21.21.302, 21.25.206, 21.25.306, 21.25.403(D), 21.25.407, 21.27.110(B)(2), 21.31.201, 21.31.215, 21.31.240, 21.31.245, 21.31.260, 21.33.110, 21.33.210, 21.33.255, 21.34.020, 21.41.216, 21.41.251, 21.41.281, 21.42.030, 21.44.090, 21.44.120, 21.44.210, 21.44.400, 21.47.030, 21.51.230, 21.51.235, 21.52.100, 21.52.200, 21.52.201, 21.52.610 and 21.53.123; adds § 21.15.565, 21.15.1055, 21.15.1338, 21.42.060, 21.51.227, 21.51.292, 21.52.204, 21.52.209.5, 21.52.240 and 21.52.257; repeals § 21.52.226, 21.52.276 and Ord. 21.55, zoning (21.10, 21.15, 21.21, 21.25, 21.27, 21.31, 21.33, 21.34, 21.41, 21.42, 21.44, 21.47, 21.51, 21.52, 21.53)
C-7033	Amends § 10.20.070, 10.24.100 and 10.34.040, vehicles and traffic (10.20, 10.24, 10.34)
C-7034	Amends § 10.32.110, preferential parking (10.32)
C-7035	Amends § 4 of Ord. C-5963, parking and business improvement area (Special)
C-7036	Temporary suspension of certain zoning provisions (Not codified)
C-7037	Amends § 10.40.030, truck routes (10.40)
C-7038	Temporary limitation on development (Repealed by C-7063)
C-7039	Amends § 21.24.120 and 10.34.040, vehicles and traffic (10.24, 10.34)
C-7040	Amends § 21.32.120, 21.41.231 and 21.52.216, zoning (21.32, 21.41, 21.52)
C-7041	Temporarily limits issuance of certain permits (Repealed by C-7091)
C-7042	Amends § 10.20.070, special stops (10.20)
C-7043	Adds § 10.30.123, beach area parking lots; 16.08.081, 16.08.261, 16.08.262, 16.08.263, 16.08.264, 16.08.265, 16.08.266, 16.078.267, 16.08.551, 16.08.680, 16.08.985, 16.12.061, 16.12.161, 16.12.162, and 16.12.281, public facilities and historical landmarks, amends § 10.30.010, 10.30.080 and 10.30.120, beach area parking lots; 16.04.040, 16.08.550, 16.08.580, 16.08.640, 16.08.760, 16.16.010, and 16.16.090, public facilities and historical landmarks (10.30, 16.04, 16.08, 16.12, 16.16)
C-7044	Amends § 14.04.050(A), obstructions of streets and sidewalks (14.04)
C-7045	Rezone (Special)

Ordinance Number	Disposition
C-7046	Rezone (Special)
C-7047	Adds § 21.15.555, 21.15.995, 21.15.3015, 21.45.135, 21.52.232 and 21.52.247; amends § 21.15.1380, 21.15.1800, 21.25.502, 21.25.508, 21.27.090, 21.30.010, 21.32.020, 21.32.030, 21.32.110, 21.32.120, 21.32.200, 21.32.210, 21.32.220, 21.32.225, 21.32.235, 21.32.240, 21.41.203, 21.51.110, 21.51.235, 21.52.246, 21.52.279 and 21.52.281, zoning; repeals Ord. 21.48(21.15, 21.25, 21.27, 21.30, 21.32, 21.41, 21.45, 21.51, 21.52)
C-7048	Amends § 10.14.020 and 10.34.040, vehicles and traffic (10.14, 10.34)
C-7049	Amends § 2.78.010, 2.78.040 and 2.78.060 unclaimed property (2.78)
C-7050	Adds § 8.76.017 and 8.76.215, property maintenance (8.76)
C-7051	Designates Hellman Street Craftsman Historic Landmark District (Special)
C-7052	Adds § 16.52.810, historic landmarks (16.52)
C-7053	Amends § 10.14.020, 10.20.070 and 10.34.040, vehicles and traffic (10.14, 10.20, 10.34)
C-7054	Adds § 2.30.025, Armed Services Commission (Repealed by C-7382)
C-7055	Amends § 1 of Ord. C-6219 Belmont Shore Parking Meter Revenue Fund (Special)
C-7056	Designates Marine Stadium historic landmark site (Not codified)
C-7057	Adds § 8.60.025 and 8.60.360; amends § 8.60.010 through 8.60.060, 8.60.082, 8.60.087, 8.60.100 through 8.60.150, 8.60.190, 8.60.200, 8.60.230, C-70578.60.240, 8.60.260 and 8.60.350, (cont'd.) refuse; repeals § 8.60.170(8.60)
C-7058	Amends § 3.52.210(B), 3.52.214 and 3.52.716(E), bonds and public improvement financing (3.52)
C-7059	Extends gas franchise terms (Special)
C-7060	Executes agreement for parking management services (Special)
C-7061	Amends § 2.03.020(B) and 2.03.040(A), City Council (2.03)
C 7062	Amends § 21.62.040, 21.62.110, 21.62.140, 21.62.160, 21.62.180, 21.62.210 and 21.62.220, zoning (21.62)
C-7063	Repeals Ord. C-7038(Repealer)
C-7064	Adds § 21.15.2475; amends § 21.15.110(G), 21.27.070(0), 21.27.090(B), 21.31.201, 21.44.130 and 21.60.310, zoning (21.15, 21.27, 21.31, 21.44, 21.60)
C-7065	Adds § 21.42.035; amends § 21.42.010 zoning (21.42)
C-7066	Amends § 14.14.050 and 14.14.080, occupation of public walkways (14.14)
C-7067	Amends § 3.80.233 and 3.80.520, business license tax (3.80)
C-7068	Amends § 10.08.120, 10.12.020, 10.20.070, 10.24.020, 10.24.080, 10.24.110, 10.34.040 and 10.58.060, vehicles and traffic (10.08, 10.12, 10.20, 10.24, 10.34, 10.58)
C-7069	Authorization to contract for window washing services (Special)

Ordinance Number	Disposition
C-7070	Amends Parts 10 and 11 of official Use District Map (Special)
C-7071	Temporary zoning revision relating to seasonal fruit sales (Special)
C-7072	Amends § 2 of Ord. C-6496, departmental organization (Not codified)
C-7073	Amends § 10.24.070 and 10.34.040, vehicles and traffic (10.24)
C-7074	Adds § 16.52.770, historic landmarks (16.52)
C-7075	Adds § 16.52.830, historic landmarks (16.52)
C-7076	Amends § 10.24.070, parking restrictions (10.24)
C-7077	Establishes planned development district PD-30(Repealed by C-7533)
C-7078	Amends § 2 of Ord. C-6578, Atlantic Avenue Planned Development District (Special)
C-7079	Amends Parts 4, 5, 10 and 11 of official Use District Map (Special)
C-7080	Amends Part 9 of official Use District Map (Special)
C-7081	Amends Part 16 of official Use District Map (Special)
C-7082	Amends § 6.16.100, animal regulation (6.16)
C-7083	Amends § 18.12.101 and 18.12.141, buildings and construction (18.12)
C-7084	Amends § 10.48.070, bicycles (10.48)
C-7085	Adds § 3.52.115; amends § 3.52.120, 3.52.130 and 3.52.140, bonds and public improvement financing (3.52)
C-7086	Amends § 10.24.070 and 10.34.040, vehicles and traffic (10.24, 10.34)
C-7087	Extension of gas franchise (Special)
C-7088	Amends § 10.08.120, traffic control devices (10.08)
C-7089	Amends § 10.34.040 parking for handicapped persons in public places (Repealed by C-7469)
C-7090	Amends Ord. C-6219, parking revenue fund (Special)
C-7091	Adds Ord. 5.47, Horse-Drawn Carriages; repeals Ord. C-7041(5.47)
C-7092	Adds Ord. 21.64, Zoning (21.64)
C-7093	Amends § 10.20.070 and 10.34.040, vehicles and traffic (10.20, 10.34)
C-7094	Amends § 18.18.030, 18.18.050, 18.18.100B and C, 18.18.120, 18.18.140 and 18.18.150, park and recreation facilities fee (18.18)
C-7095	Adds § 18.17.055; amends § 18.17.040, 18.17.050, 18.17.060, 18.17.130, 18.17.150 and 18.17.160, transportation improvement fee (18.17)
C-7096	Amends § 6.16.100, animal regulation (6.16)
C-7097	Elevator maintenance service agreement (Special)
C-7098	Adds § 8.76.101, property maintenance; 10.46.121, abandoned vehicles; 18.20.279, buildings and construction; amends § 8.56.010, 8.56.020, 8.56.040, 8.56.070, 8.56.100 and 8.56.110, weed removal; 10.46.090 and 10.46.130 abandoned vehicles; 18.20.250, 18.20.260, 18.20.280, 18.20.290 and 18.20.300, buildings and construction (8.56, 8.76, 10.46, 18.20)
C-7099	Amends Ord. C-6993, temporary prohibition on residential development (Special)

Ordinance Number	Disposition
C-7100	Adds Ord. 2.48, Marine Advisory Commission (2.48)
C-7101	Amends § 16.08.330, marinas (16.08)
C-7102	Amends § 10.20.070 and 10.34.040, vehicles and traffic (10.20, 10.34)
C-7103	Amends § 9.42.110, trespassing (9.42)
C-7104	Amends Parts 8 and 14 of official Use District Map (Special)
C-7105	Amends Part 17 of official Use District Map (Special)
C-7106	Grants gas franchise (Special)
C-7107	Amends § 10.24.070, 10.24.080, 10.24.110, 10.24.120 and 10.34.040, vehicles and traffic (10.24, 10.34)
C-7108	Elevator maintenance service agreement (Special)
C-7109	Amends Part 15 of official Use District Map (Special)
C-7110	Amends Part 12 of official Use District Map (Special)
C-7111	Amends portion of Part 23 of official Use District Map (Special)
C-7112	Adds § 10.20.070(2170)—(2172) and § 10.23.040(704—709), vehicles and traffic (10.20, 10.34)
C-7113	Adds § * 10.20.070(2167)—(2169) and 10.24.100(56); amends § 10.24.070(155) and 10.24.080(25); repeals § 10.24.080(63) and (65), vehicles and traffic (10.20, 10.24)
C-7114	Adds § 10.24.110(57) and 10.34.040(710), (711) and (712); amends § 10.34.040(691); repeals § 10.34.040(307) and (472), vehicles and traffic (10.24, 10.34)
C-7115	Adds § 21.37.020(26)—(30); repeals Ords. C-6980 and C-6990, zoning (21.37)
C-7116	Amends portion of Parts 10 and 11 of official Use District Map (Special)
C-7117	Amends portion of Part 11 of official Use District Map (Special)
C-7118	Amends § 10.30.080, 16.04.050 and 16.16.010, beaches and beach parking hours (10.30, 16.04, 16.16)
C-7119	Amends portion of Parts 24 and 25 of official Use District Map (Special)
C-7120	Adopts 1993-1994 budget (Special)
C-7121	Amends § 3.64.035, transient occupancy tax (3.64)
C-7122	Approves res. WD-1028, water and sewer service (Not codified)
C-7123	Amends § * 15.36.010, 15.36.050A, 15.36.080, natural gas (15.36)
C-7124	Suspends July 1, 1993, adjustment of business license taxes (Special)
C-7125	Suspends July 1, 1993, adjustment of additional business license taxes (Special)
C-7126	Adds § 10.20.070(2173), (2174), 10.24.070(290), 10.34.040(718)—(721); repeals § 10.34.040(340), vehicles and traffic (10.20, 10.24, 10.34)
C-7127	Adds § 21.32.130; amends § 20.36.020, table 32-1B of § 21.32.120, table 32-3B of § 21.32.220, table 41-10 of § 21.41.216, § 21.41.281 and table 32-1 of § 21.43.020, zoning (20.36, 21.32, 21.41, 21.43)
C-7128	Amends portion of parts 4, 5, 10 of official use district map (Special)
C-7129	Amends portion of part 18 of official use district map (Special)

Ordinance Number	Disposition
C-7130	Amends portion of part 11 of official use district map (Special)
C-7131	Amends portion of part 11 of official use district map (Special)
C-7132	Amends § 5.30.020, 8.68.020, 8.68.040, 8.68.060, 8.68.090, 8.68.110, 8.68.160, sale and distribution of tobacco products and smoking in public places (Subjected to referendum and originally not codified. Approved by the voters on April 12, 1994, and effective April 19, 1994)(5.30, 8.68)
C-7133	Adds § 10.20.070(2175)—(2178), 10.24.110(58) and 10.34.040(722)—(725); amends § 10.24.120(15); repeals § 10.24.120(139), 10.34.040(700), vehicles and traffic (10.20, 10.24, 10.34)
C-7134	Amends portion of part 9 of official use district map (Special)
C-7135	Approves redevelopment plan (Repealed by C-7768)
C-7136	Amends § 10.32.110, preferential parking (10.32)
C-7137	Adds § 10.34.040(713)—(717); repeals § 10.34.040(239), (256), (289), (358), (502), (547), parking (Repealed by C-7469)
C-7138	Adds § 10.14.020B(32), 10.34.040(726)—(730); repeals § 10.34.040(266), (542), (679), traffic control (1014, 1034)
C-7139	Special tax levy within community facilities district no. 3(Special)
C-7140	Amends § 2 of Ord. C-6496, departmental organization (Not codified)
C-7141	Adds § 10.14.020A(100), 10.20.070(21 79)—(2183), 10.54.040EE, traffic control (10.14, 10.20, 10.54)
C-7142	Adds § * 10.20.070(2184)—(2186), 10.24.0200(35), 10.24.110(59), 10.24.120(165), 10.34.040(731)—(737); amends § 10.24.110(3); repeals § 10.34.040(4), (114), (162), (586), (666), (685), traffic control (10.20, 10.24, 10.34)
C-7143	Amends portion of part 10 of official use district map (Special)
C-7144	Adds § 10.24.0200(36), 10.24.070(291), parking (10.24)
C-7145	Amends § 2.48.020, marine advisory commission (2.48)
C-7146	Amends portions of parts 9, 10, 11 of official use district map (Special)
C-7147	Amends portions of parts 9, 10, 11 of official use district map (Special)
C-7148	Adopts redevelopment plan (Not codified)(Repealed by C-7737)
C-7149	Amends portions of parts 9, 15 of official use district map (Special)
C-7150	Adds § 21.52.215; amends § 21.32.220, 21.33.110, zoning (21.32, 21.33, 21.52)
C-7151	Adds § 10.34.040(738), (739), repeals § * 10.34.040(291), (346), (599), parking (Repealed by C-7469)
C-7152	Adds § 10.20.070(2187)—(2190), 10.24.120(166), 10.34.040(740)-(743); amends § 10.24.120(15); repeals § 10.34.040(75), (233), (433), (458), (711), traffic control (10.20, 10.24, 10.34)
C-7153	Amends § * 21.41.203, 21.52.610, zoning (21.41, 21.52)
C-7154	Amends § 10.32.110, preferential parking (10.32)
C-7155	Amends § 8.68.090, smoking in public places (Repealed by C-7955)

Ordinance Number	Disposition
C-7156	Adds § 10.24.100(57), parking (10.24)
C-7157	Adds § * 10.34.040(744)—(746), repeals § * 10.34.040(354), (554), (656), parking (Repealed by C-7469)
C-7158	Amends § 10.20.070(2187), traffic control (10.20)
C-7159	Amends portions of parts 10, 11 of official use district map (Special)
C-7160	Amends § 1.25.020, filing fee for elections (1.25)
C-7161	Adds § 16.52.840, historical landmarks (16.52)
C-7162	Adds § 3.60.095, sales and use tax (3.60)
C-7163	Adds § 1.25.030, election procedures (1.25)
C-7164	Approves application for development agreement (Special)
C-7165	Adds § * 10.20.070(2191)—(2195), 10.24.020D(2), 10.24.080(80), 10.34.040(747)—(749), 10.34.050(34); amends § 10.24.120(151); repeals § 10.34.040(14), (32), (37), (39), (62), (93), (116), (208), (218), (220), (272), (301), (512), (651), traffic control (10.20, 10.24, 10.34)
C-7166	Amends § 1.17 of Ord. C-3548, compensation of city employees for jury service (Special)
C-7167	Adds § 10.34.040(750)—(753); repeals § 10.34.040(40), (92), (274), (420), (733), traffic control (Repealed by C-7469)
C-7168	Amends portion of parts 10, 11 of official use district map (Special)
C-7169	Amends portion of parts 20, 26 of official use district map (Special)
C-7170	Amends portion of parts 22, 23, 28, 29 of official use district map (Special)
C-7171	Adds § 10.14.020A(101), 10.34.040(754)—(756), 16.20.080(4), (5); repeals § * 10.34.040(158), (489), (528), (642), traffic control (10.14, 10.34, 16.20)
C-7172	Adds § 10.24.080(81); repeals § 10.24.110(59), traffic control (10.24)
C-7173	Adds Ord. 15.01 and § 15.04.311; amends § 15.04.010—15.04.030, 15.04.045, 15.04.060, 15.04.150—15.04.190, 15.04.210, 15.04.230—15.04.260, 15.04.290, 15.04.315, 15.04.330, 15.08.010, 15.08.020, 15.08.040, 15.08.070—15.08.090, 15.08.120, 15.16.010, 15.16.020, 15.16.040, 15.16.080, 15.20.010(0) and (I), 15.20.050—15.20.110, 15.20.150—15.20.180, 15.20.200, 15.24.010, 15.24.130, 15.24.180—15.24.220, 15.24.240—15.24.300, 15.28.010 and 20.40.100(A); repeals Chs. 15.12—15.14 and § 2.84.020—2.84.040, 15.04.065, 15.04.085, 15.04.095, 15.04.130, 15.04.140, 15.08.030, 15.08.050, 15.08.060, 15.08.100, 15.08.110, 15.08.130, 15.16.030, 15.16.050, 15.16.060, 15.16.090—15.16.190, 15.20.020—15.20.040, 15.20.120, 15.20.190, 15.24.020—15.24.080, 15.24.110, 15.24.140 and 15.28.020—15.28.100, sewer service (15.01, 15.04, 15.08, 15.16, 15.20, 15.24, 15.28, 20.40)
C-7174	Adds § 10.24.020(C)(37), traffic control (10.24)
C-7175	Adds § 8.80.200(M)(3), noise from leaf blowers (8.80)
C-7176	Amends portion of Part 9 of official Use District Map (Special)

Ordinance Number	Disposition
C-7177	Adds Ord. 10.41, Use of Streets by Overweight Vehicles (10.41)
C-7178	Adds § 10.34.040(757) and (758) and 16.20.080(B)(4) and (5); amends § 10.34.040(382); repeals § 10.34.040(448) and (584) and 16.20.080(4) and (5), traffic control (10.34, 16.20)
C-7179	Designates Brenner Place Historic Landmark District (Not codified)
C-7180	Temporary zoning revision relating to seasonal fruit sales (Special)
C-7181	Adds § 10.20.070(2196) and (2197), 10.24.080(82) and (83) and 10.34.040(759)—(761); amends § 10.24.070(290); repeals § 10.34.040(414), (592), (652) and (689), traffic control (10.20, 10.24, 10.34)
C-7182	Amends § 6.16.090, dogs (6.16)
C-7183	Amends § 18.12.201, disabled access appeals boards (18.12)
C-7184	Amends Ord. 2.33, Citizens' Advisory Commission on Disabilities (2.33)
C-7185	Amends § 2.30.025, Armed Services Commission (Repealed by C-7382)
C-7186	Amends § 10.24.120(37), 10.34.040(261) and 10.34.040(762); repeals § 10.34.040(110), traffic control (10.24, 10.34)
C-7187	Adds § 10.20.070(2198)—(2200) and 10.34.040(763); amends § 10.34.040(661) and (721); re peals § 10.34.040(24), (82), (88) and (209), traffic control (10.20, 10.34)
C-7188	Temporary prohibition of issuance, of permits for demolition of land-mark structures (Not codified)
C-7189	Temporary freeze of certain zoning regulations (Not codified)
C-7190	Adds § 10.34.040(764)—(767); amends § 10.34.040(72), (152), (348) and (549); repeals § 10.34.040(235), (264), (270), (284), (303), (349), (353), (465) and (604), traffic control (Repealed by C-7469)
C-7191	Amends § 3.80.420.5, business licenses (3.80)
C-7192	Adds § 16.52.860, historical landmarks (16.52)
C-7193	Designates Linden Avenue Historic Landmark District (Not codified)
C-7194	Delegates to Board of Harbor Corn-missioners power to grant easement (Special)
C-7195	Amends § 16.08.340(A), enforcement of laws by City personnel (16.08)
C-7196	Amends portion of Part 10 of official Use District Map (Special)
C-7197	Adds § 10.08.120(106) and (107), 10.20.070(2201) and (2202), 10.24.080(84), 10.24.110(59) and 10.34.040(768)—(773); amends § 10.24.120(146) and 10.34.040(622); repeals § * 10.24.070(260) and 10.34.040(7), (38), (251), (327), (406), (430), (574), (696) and (727), traffic control (10.08, 10.20, 10.24, 10.34)
C-7198	Add § 10.24.100(58), traffic control (10.24)
C-7199	Amends portion of Part 30 of official Use District Map (Special)
C-7200	Amends portion of Part 17 of official Use District Map (Special)
C-7201	Temporary suspension of certain live entertainment permit requirements (Not codified)

Ordinance Number	Disposition
C-7202	Amends § 3(1)(a) of Ord. C-5561, Long Beach Marina Planned Development District (Special)
C-7203	Adds § * 10.24.075(64) and 10.24.080(85), traffic control (10.24)
C-7204	Adds § 10.48.070(0), bicycle riding on sidewalks (10.48)
C-7205	Amends portion of Part 12 of official Use District Map (Special)
C-7206	Amends portions of Parts 28, 29 and 30 of official Use District Map (Special)
C-7207	Amends portion of Part 30 of Official Use District Map (Special)
C-7208	Adds § 10.24.075(65)—(79), unattached trailers (10.24)
C-7209	Adds § 10.20.070(2203)—(2206), 10.24.080(86) and 10.34.040(774)—(777); amends § 10.24.120(115), traffic control (10.20, 10.24, 10.34)
C-7210	Amends § 10.48.070, bicycle riding on sidewalks (10.48)
C-7211	Amends § 10.30.080, 16.04.050 and 16.16.010, beach parking (10.30, 16.04, 16.16)
C-7212	Amends Ord. C-6223, Kilroy Airport Center Planned Development District (Special)
C-7213	Adds § 10.34.040(778)—(784); repeals § 10.24.120(133) and 10.34.040(25), (71), (655) and (662), traffic control (10.24, 10.34)
C-7214	Adds § 14.16.090; amends § 14.16.080, bench permits (14.16)
C-7215	Adds § 20.04.055, subdivision-related entitlements (20.04)
C-7216	Adds § 10.20.070(2207) and (2208); amends § 10.14.020(B)(4) and 10.24.120(15) and (37), traffic control (10.14, 10,20)
C-7217	Adds § 5.20.250 and 5.20.260; amends § 5.20.010 and 5.20.130(0), bingo games (520)
C-7218	1994-95 budget (Special)
C-7219	Delegates additional powers to Board of Harbormasters (Special)
C-7220	Amends § 2 of Ord. C-6496, departmental organization (Not codified)
C-7221	Adds § 10.24.100(59) and (60), traffic control (10.24)
C-7222	Approves Res. WD-1043, water and sewer service rates (Not codified)
C-7223	Amends § 8.60.080, refuse transportation permits (8.60)
C-7224	Amends § 3.68.040(0), utility users tax (3.68)
C-7225	Amends portions of Parts 5 and 11 of official Use District Map (Special)
C-7226	Amends portion of Part 11 of official Use District Map (Special)
C-7227	Amends Ord. C-7201, temporary suspension of certain live entertainment permit requirements (Not codified)
C-7228	Amends portions of Parts 8 and 9 of official Use District Map (Special)
C-7229	Amends portion of Part 9 of official Use District Map (Special)
C-7230	Adds § 10.34.040(785)—(789) and 10.34.050(35)—(38); amends § 10.12.010(7)(b) and (c), 10.12.010(21)(a) and (b), 10.12.010(26)(g), 10.12.010(31)(a), 10.12.010(35)(h), 10.12.010(48)(a), 10.12.010(68)(a), 10.12.010(69)(a), 10.12.020(7)(a) and 10.12.020(44)(a); repeals § 10.34.040(408) and (499), traffic control (10.12, 10.34)

Ordinance Number	Disposition
C-7231	Amends § 5.20.020 and 5.20.180, bingo games (5.20)
C-7232	Amends § 3 of Ord. C-6646, Bixby Knolls Parking and Business Improvement Area (Special)
C-7233	Amends portions of Parts 12, 13, 18 and 19 of official Use District Map (Special)
C-7234	Amends portion of Part 14 of official Use District Map (Special)
C-7235	Adds § 10.20.070(2209) and 10.34.040(790)—(794); repeals § 10.34.040(739) and (770), traffic control (10.20, 10.34)
C-7236	Amends portions of Parts 9 and 10 of official Use District Map (Special)
C-7237	Amends portion of Part 11 of official Use District Map (Special)
C-7238	Amends portion of Part 18 of official Use District Map (Special)
C-7239	Amends portions of Parts 14 and 15 of official Use District Map (Special)
C-7240	Amends portion of Part 16 of official Use District Map (Special)
C-7241	Amends portion of Part 11 of official Use District Map (Special)
C-7242	Amends portion of Part 11 of official Use District Map (Special)
C-7243	Proposition for bond (Special)
C-7244	Adds District U to § 10.32.110, preferential parking district (10.32)
C-7245	Amends § 10.34.040(356), (411) and (476); repeals § 10.34.040(2), (19), (33), (72), (83), (90), (98), (105), (126), (183), (195), (211), (236), (250), (265), (275), (288), (304), (319), (325), (339), (385), (402), (417), (450), (451), (475), (495), (508), (511), (515), (535), (596), (598), (615), (668), (678), (706), (709) and (744), traffic control (Repealed by C-7469)
C-7246	Adds § 16.08.341; amends § 16.08.340(A), marine safety officers (16.08)
C-7247	Adds Ord. 21.50 and § 21.15.064, 21.15.3225, 21.33.243, 21.45.170, 21.51.215 and 21.52.231.5; amends § 21.21.105, 21.21.302, 21.25.403, 21.25.502, 21.25.506, 21.27.060, 21.27.110, 21.31.110(Table 31-1), 21.31.201(Table 31-2A), 21.31.215(F) and Table 31-3; 21.31.245(0), 21.32.110(Table 32-1B), 21.32.210(Table 32-2B), 21.32.240(F), 21.33.110(Table 33-1), 21.35.110(Table 35-1), 21.41.216(Table 41-10), 21.41.223(A), 21.41.226, 21.41.269, 21.43.020(Table 43-1), 21.52.265, 21.52.279, 21.60.440(A) and 21.63.070; repeals §§ 21.21.301 and 21.21.302(E), zoning (21.15, 21.21, 21.25, 21.27, 21.31, 21.32, 21.33, 21.35, 21.41, 21.43, 21.45, 21.50, 21.51, 21.52, 21.60, 21.63)
C-7248	Adds § 10.20.070.2210, traffic control (10.20)
C-7249	Adds § 5(C)(3) and 5(H)(3) to Ord. C-6886, planned unit development (Not codified)
C-7250	Adds Ord. 5.61, Filming Activities; amends Ord. 5.60 in its entirety, Parades and Special Events (5.60, 5.61)

Ordinance Number	Disposition
C-7251	Amends portions of Parts 15, 16, 22 and 23 of official Use District Map (Special)
C-7252	Adds Ord. 18.21, Maintenance of Long-Term Boarded and Vacated Buildings (18.21)
C-7253	Adds § 18.68.135, alternatives to demolition of landmark structures (18.68)
C-7254	Amends portion of Part 16 of official Use District Map (Special)
C-7255	Amends portion of Part 10 of official Use District Map (Special)
C-7256	Amends portions of Parts 23 and 29 of official Use District Map (Special)
C-7257	Adds § 10.34.040(796)—(801); repeals § 10.34.040(242), (418) and (753), traffic control (Repealed by C-7469)
C-7258	Adds § 10.20.070(2211)-.-(2214), traffic control (10.20)
C-7259	Amends § 10.14.020A(76); adds § 10.14.020B(33), traffic control (10.14)
C-7260	Amends § 10.34.040(775); adds § 10.34.040(795); repeals § 10.34.040(143), (677), (759) and (769), traffic control (Repealed by C-7469)
C-7261	Amends § 10.24.120(37), traffic control (10.24)
C-7262	Amends § 10.24.120(15), traffic control (10.24)
C-7263	Amends § 3.80.180 and 3.80.253, alternatives to taxation (3.80)
C-7264	Repeals Ord. C-6856, amending Long Beach/405 Retail Redevelopment Project (Special)
C-7265	Amends portion of Part 14 of official Use District Map (Special)
C-7266	Amends § 10.24.120(34), traffic control (10.24)
C-7267	Adds § 10.34.040(802)—(805); repeals § 10.34.040(252), (459), (460), (510), (563), (577), (627), (667), (672), (687), (704), (768), traffic control (Repealed by C-7469)
C-7268	Adds § 10.24.070(292), traffic control (10.24)
C-7269	Emergency interim Ord. temporarily prohibiting/restricting certain land uses relating to adult entertainment (Ord. provisions terminated Dec. 1, 1994)(Not codified)
C-7270	Repeals § 10.24.120(140), (141), traffic control (10.24)
C-7271	Amends § 10.24.0200(35), traffic control (10.34)
C-7272	Adds § 16.52.890, historical landmark (16.52)
C-7273	Adds § 16.52.870, historical landmark (16.52)
C-7274	Amends § * 9.20.050, 21.15.110, 21.27.150 and 21.45.110, adult entertainment businesses (9.20, 21.15, 21.27, 21.45)
C-7275	Amends § 18.40.027, uniform plumbing code (Repealed by C-7622)
C-7276	Adds § 10.34.040(806)—(812); amends § 10.24.120(78), 10.34.040(661), traffic control (10.24, 10.34)
C-7277	Adds § 5.80.035; amends § 5.80.010M, 5.80.050A; repeals § 5.80.010R, 5.80.045, vehicles for hire (5.80)
C-7278	Adds § 16.52.900, historical landmark (16.52)
C-7279	Amends Ord. C-6186, Alamitos land planned development district (Special)

Ordinance Number	Disposition
C-7280	Adds § 10.20.070(2215), 10.24.120(167), 10.34.050(39), (40), traffic control (10.20, 10.24, 10.34)
C-7281	Adds § 10.20.070(2216), (2217), 10.34.040(813)—(818), 10.48.110, 10.52.040J, K, L, 10.54.040FF, GG, HIT; repeals § 10.34.040(387), (699), traffic control (10.20, 10.34, 10.48, 10.52, 10.54)
C-7282	Amends portion of part 11 of official use district map (Special)
C-7283	Amends Ch. 2.01, Long Beach campaign reform act (2.01)
C-7284	Amends Ch. 1.22 in its entirety, ordinance submission to voters (referendum and initiative)(Repealed by 05-0013)
C-7285	Amends Ord. C-5562, downtown shoreline planned development district (Special)
C-7286	Amends § 5.72.020B, entertainment cafes (5.72)
C-7287	Adds § 10.34.040(819)—(832), 10.58.060(27); amends § 10.34.040(128), (603); repeals § 10.34.040(11), (94), (99), (145), (161), (187), (227), (293), (317), (363), (375), (376), (386), (388), (504), (505), (538), (565), (579), (614), (646), traffic control (10.34, 10.58)
C-7288	Amends parts 1-9, 11, 12 of official use district map (Special)
C-7289	Amends portion of part 11 of official use district map (Special)
C-7290	Amends portion of part 11 of official use district map (Special)
C-7291	Amends Ord. C-7148, central Long Beach redevelopment project (Special)
C-7292	Amends Ord. C-5187, downtown redevelopment project (Special)
C-7293	Amends Ord. C-7135, Long Beach/405 Retail Center redevelopment project (Special)
C-7294	Amends Ord. C-6954, Los Altos redevelopment project (Special)
C-7295	Amends Ord. C-5093, Poly High redevelopment project (Special)
C-7296	Amends Ord. C-4451, West Beach redevelopment project (Special)
C-7297	Amends Ord. C-5188, west Long Beach industrial redevelopment project (Special)
C-7298	Temporary suspension of enforcement of § 21.44.400, nonconforming on premises signs (Special)
C-7299	Adds § * 10.24.120(168), 10.34.040(833)—(836); amends § 10.34.040(591); repeals § 10.24.120(78), 10.34.040(112), (337), (351), (513), (523), (525), (755), traffic control (10.24, 10.34)
C-7300	Adds § 3.04.015, fiscal year of city (3.04)
C-7301	Adds § 16.52.910, historical landmark (16.52)
C-7302	Amends portion of part 11 of official use district map (Special)
C-7303	Amends portion of part 11 of official use district map (Special)
C-7304	Amends § 5.12.120, false alarms (5.12)
C-7305	Adds § 10.34.040(837)—(839), traffic control (Repealed by C-7469)

Ordinance Number	Disposition
C-7306	Adds § 10.20.070(2218), 10.34.040(840), (841), 10.34.050(41)—(46); amends § 10.24.120(14), 10.34.040(422); repeals § 10.34.040(46), (271), (335), (350), (419), (630), (638), (670), (814), traffic control (10.20, 10.24, 10.34)
C-7307	Amends § 10.32.110, traffic control (10.32)
C-7308	Adds 10.24.100(61), traffic control (10.24)
C-7309	Amends portions of parts 22 and 28 of official use district map (Special)
C-7310	Adds § 10.24.020A(10), traffic control (10.24)
C-7311	Adds § 10.20.070(2219), (2220), 10.24.120(169), 10.34.040(842)—(852); repeals § 10.34.040(428), (501), (609), traffic control (10.20, 10.24, 10.34)
C-7312	Adds § 15.44.1500; amends § 15.44.180, 15.44.190, 15.44.230, pipeline permits (15.44)
C-7313	Amends § 2.03.020B, 2.03.040, city council meetings (2.03)
C-7314	Adds § 2.01.380, Long Beach campaign reform act (2.01)
C-7315	Adds Ch. 2.10, volunteers (2.10)
C-7316	Amends a portion of part 11 of official use district map (Special)
C-7317	Adds § 10.34.040(853)—(861); amends § 10.34.050(26),(32); repeals § 10.34.040(634),(808),(834), traffic control (Repealed by C-7469)
C-7318	Adds § 10.24.075(80), 10.34.040(862)—(866); amends § 10.24.120(93), 10.34.040(637), (790); repeals § * 10.34.040(35), (429), (675), (798), traffic control (10.24, 10.34)
C-7319	Amends § 21.50.020A, 21.50.050, zoning (21.50)
C-7320	Amends Ch. 16.43; repeals Chs. 8.84, 16.45, 16.46, airport noise compatibility (8.48, 16.43, 16.45, 16.46)
C-7321	Amends Ord. C-5562, downtown shoreline planned development district (Special)
C-7322	Amends portions of parts 9 and 15 of official use district map; amends Ord. C-6886, Long Beach Boulevard planned development district (Special)
C-7323	Adds § 10.20.070(2221), 10.24.070(293), 10.34.040(867), (868); amends § 10.24.070(201), 10.24.120(11); repeals § 10.34.040(483), (804), (816), traffic control (10.20, 10.24, 10.34)
C-7324	Amends § 9.22.050, licensing publie area (9.22)
C-7325	Adds § * 10.20.070(2222)—(2273), 10.24.020(38), 10.24.020E, 10.24.080(87), (88), 10.34.040(869), (870); amends § * 10.24.070(50), 10.24.120(36), (63); repeals § 10.24.070(262); 10.34.040(543), (550); traffic control (10.20, 10.24, 10.34)

Ordinance Number	Disposition
C-7326	Amends § 21.10.030, 21.15.1055, 21.15.1070, 21.15.2332, 21.21.501, 21.25.506, 21.25.508, 21.31.215F, 21.31.245, 21.32.030, 21.32.130, 21.32.235, 21.33.030, 21.33.110, 21.36.110, 21.41.216, 21.41.219, 21.41.243, 21.41.281, 21.42.020, 21.42.030, 21.44.090, 21.45.135B, 21.45.140, 21.47.020A, 21.47.0300, 21.53.113; adds § * 21.10.045, 21.42.032; repeals § * 21.15.1080, (cont'd.) 21.51.245, 21.51.250, zoning (21.10, 21.15, 21.21, 21.25, 21.31, 21.32, 21.33, 21.36, 21.41, 21.42, 21.44, 21.45, 21.47, 21.51, 21.53)
C-7327	Amends Ord. C-5963, Belmont Shore Parking and Business Improvement Area (Special)
C-7328	Amends Ord. C-7321, Downtown Shoreline Planned Development District (Special)
C-7329	Adds § * 10.34.040(871)—(874), repeals § 10.34.040(190), (281), (282), (331), (359), (488), (629), (754), (795), (851), traffic control (Repealed by C-7469)
C-7330	Amends § 8.60.010, 8.60.030, 8.60.080, 8.60.088, 8.60.089; adds § 8.60.091, 8.60.093, 8.60.111, 8.60.113, refuse transportation permits (8.60)
C-7331	Amends Ord. C-6646, Bixby Knolls Parking and Business Improvement Area (Special)
C-7332	Adds Ord. 1.21 in its entirety, Specific Election Procedures (1.21)
C-7333	Amends § 5.58.010, 5.58.080, seated massage (5.58)
C-7334	Amends § 10.12.010(15), (47), (62), 10.12.020(23); adds § 10.12.030(3), 10.14.020A(102), (103), 10.20.070(2274), 10.34.040(875)—(879); repeals § 10.12.020(23b), 10.34.040(326), (526), (712), (741), (845), traffic control (10.12, 10.14, 10.20, 10.34)
C-7335	Approves Res. WD-1065, rates and charges for water and sewer (Special)
C-7336	Amends § 15.36.100; adds § * 15.36.085, 15.36.095, rate classification for gas service (15.36)
C-7337	Suspension of July 1, 1995, adjustment to business license taxes (Special)
C-7338	Suspension of July 1, 1995, adjustment of additional business license taxes (Special)
C-7339	1995-96 budget (Special)
C-7340	Amends portions of Parts 8 and 14 of official Use District Map (Special)
C-7341	Adds § 10.20.070(2275)—(2278); repeals § 10.24.120(131), traffic control (10.20, 10.24)
C-7342	Amends § 2 of Ord. C-6496, departmental organization (Not codified)
C-7343	Amends portions of Part 8 of official Use District Map, California State University and Technology Center Planned Development District; also amends § 21.37.020, zoning (Special; 21.37)
C-7344	Amends § 10.24.120(36); adds § 10.34.040(880)—.(890); repeals § 10.34.040(306), (352), (568), traffic control (10.24, 10.34)
C-7345	Adds § 16.52.920, 16.52.930, 16.52.940, historical landmarks (16.52)

Ordinance Number	Disposition
C-7346	Designates the Wilton Street Historic Landmark District (Special)
C-7347	Amends § 12.12.1001, petroleum operations (12.12)
C-7348	Adds § 10.14.020B(34), traffic control (10.14)
C-7349	Amends § H of the Marina Rules and Regulations (Special)
C-7350	Amends § IV-T, LL of the Marina Rules and Regulations (Special)
C-7351	Adds § 10.20.070(2279); adds 10.34.050(47), traffic control (10.20, 10.34)
C-7352	Amends portions of Parts 23 and 29 of official Use District Map (Special)
C-7353	Amends § 10.32.110R, traffic control (10.32)
C-7354	Adds § 10.24.100(62), traffic control (10.24)
C-7355	Adds § * 10.34.040(891)—(900); repeals § * 10.34.040(441), (722), (813), (843), traffic control, (Repealed by C-7469)
C-7356	Amends § 10.24.100(61), traffic control (10.24)
C-7357	Amends § 10.32.110R, traffic control (10.32)
C-7358	Adds § 1.21.030, election procedures (1.21)
C-7359	Amends § 10.24.120(103); repeals § 10.24.120(145), traffic control (10.24)
C-7360	Amends § 21.15.2800, Table 30-1, 21.41.203, 21.41.243, Tables 41-6 and 41-7, 21.42.040, 21.43.030, 21.43.040, 21.52.265A, 21.52.410, Table 54-1, Ord. 21.33; adds § 21.41.235, 21.41.243H, 21.41.251H, 21.41.257, 21.41.345, 21.42.050; repeals § 21.52.239, 21.52.510; also amends Ord. C-6777, Long Beach Business Center Planned Development District, Ord. C-7279, Alamitos Land Planned Development District, Ord. C-6254, Pacific Railway Planned Development District; also amends portions of Parts 1, 2, 3, 8, 9, 10, 11, 14, 16, 17, 21, 22, 23, 28, 29 and 30 of official Use District Map (industrial districts), zoning (21.15, 21.30, 21.33, 21.41, 21.42, 21.43, 21.52, 21.54; Special)
C-7361	Delegates additional powers to the Board of Harbor Commissioners (Special)
C-7362	Adds § * 10.08.120(108), (109), traffic control (10.08)
C-7363	Amends § 10.34.040(173), (715); adds § 10.34.040(901)—(910); repeals § 10.34.040(343), (659), traffic control (Repealed by C-7469)
C-7364	Amends portions of Parts 10, 11, 12, 14, 15, 16, 17, 18, 22, 23, 26, 28, 29 of official Use District Map (Special)
C-7365	Amends § 2.99.010; repeals § 2.99.020, 2.99.030, 2.99.040, records reproduction cost recovery (2.99)
C-7366	Amends § 10.24.050; adds § 10.24.055; repeals § 10.24.060, traffic control (10.24)
C-7367	Adds Ord. 8.27 in its entirety, Community Lead Hazard Control! Abatement (8.27)

Ordinance Number	Disposition
C-7368	Amends § 10.24.110(26), 10.34.040(52), (781); adds § 10.24.070(294), (295), 10.24.100(63), 10.34.040(911)—(914); repeals § 10.34.040(379), (756), (778), traffic control (10.24, 10.34)
C-7369	Adds § 10.20.070(2280).—(2290), traffic control (10.20)
C-7370	Authorizes a procedure for lease of properties at the Long Beach Airport Business Park (Special)
C-7371	Amends a portion of Part 10 of official Use District Map (Special)
C-7372	Amends § 5.80.310E, 5.80.320, vehicles for hire (5.80)
C-7373	Amends § 10.34.040(904), 10.34.050(9); adds § 10.34.040(915)—(921); repeals § 10.34.040(232), (446), (898), traffic control (Repealed by C-7469)
C-7374	Amends § 2 of Ord. C-6496, departmental organization (Not codified) C-7375 Authorizes agreement with Satsuma Landscape Maintenance for services at El Dorado Park (Special) C-7376 Adds § 10.24.070(296), traffic control (10.24) C-7377 Amends a portion of Part 26 of official Use District Map (Special) C-7378 Amends § 21.15.030, 21.31.240A, 21.31.245A, 21.33.180B, 21.45.100, 21.52.263, Tables 21-1, 31-1, 31-3, 31-6, 32-1A, 32-1B, 33-2, 43-1; adds § 21.10.047, 21.15.605, 21.15.2007, 21.15.2075, 21.15.2265, 21.25.1201 to 21.25.1215, 21.45.155, 21.52.260, 21.52.265.5, zoning (21.10, 21.15, 21.21, 21.25, 21.31, 21.32, 21.33, 21.43, 21.45, 21.52) C-7379 Amends § 18.04.040A, 18.08.020, 18.08.220, 18.12.010, 18.12.051, 18.12.052A, 18.12.130, 18.16.060, 18.16.160, 18.16.190, 18.24.010, 18.24.020, 18.24.030, 18.24.050, 18.24.060, 18.24.061, 18.24.070, 18.24.080, 18.24.120, 18.24.130, 18.24.160, 18.24.170, 18.24.180, 18.24.200, 18.28.010, 18.32.130, 18.36.010, 18.36.020, 18.36.030, 18.36.070, 18.36.080, 18.36.090A, 18.36.1700, 18.36.250, 18.36.260A, 18.40.010, 18.40.020, 18.40.025, 18.40.027, 18.40.028, 18.44.080, 18.44.262, 18.44.440, 18.56.010; adds § 18.12.055, 18.24.040, 18.36.091, 18.36.092, 18.44.081; repeals § 18.12.101, 18.12.141, 18.16.012, 18.16.065, 18.16.130, 18.16.140, buildings and construction (18.04, 18.08, 18.12, 18.16, 18.24, 18.28, 18.32, 18.36, 18.40, 18.44, 18.56)
C-7380	Amends § 1.21.010, canvass of returns (1.21)

Ordinance Number	Disposition
C-7381	Adds § 16.52.950, 16.52.960, historical landmarks (16.52)
C-7382	Repeals Ord. 2.30, Armed Services Commission (Repealer)
C-7383	Amends § 10.34.040, 10.34.050, traffic control (Repealed by C-7469)
C-7384	Delegates additional powers to the Board of Harbor Commissioners (Special)
C-7385	Amends § 10.24.120(108), traffic control (10.24)
C-7386	Adds § 9.58.020, juvenile curfew (9.58)
C-7387	Adds § 10.34.040(936)—(942); repeals § 10.34.040 (269), (617), (775), (835), traffic control (Repealed by C-7469)
C-7388	Amends a portion of Part 14 of official Use District Map (Special)
C-7389	Adds § 10.20.070 (2291)—(2294), 10.24.120 (170), traffic control (10.20, 10.24)
C-7390	Adds §§ 10.14.020A (104), 10.20.070(2295)—(3001), traffic control (10.14, 10.20)
C-7391	Adds §§ 10.24.070 (297), 10.24.080 (89), traffic control (10.24)
C-7392	Amends Table 33-2; adds §§ 21.15.602, 21.52.220, zoning (21.15, 21.33, 21.52)
C-7393	Adds § 16.52.970, historical landmarks (16.52)
C-7394	Amends § 10.34.040 (902); adds § 10.34.040 (943)—(945); repeals § 10.34.040 (660), (797), (907), traffic control (Repealed by C-7469)
C-7395	Amends § 21.10.047, zoning (21.10)
C-7396	Amends § 10.24.120 (93); adds §§ 10.14.020B (35), 10.34.040 (946)—(958); repeals § 10.34.040 (323), (442), (870), traffic control (10.14, 10.24, 10.34)
C-7397	Adds §§ 10.20.060(50), 10.20.070 (3002)—(3005), traffic control (10.20)
C-7398	Authorizes amendment to City contract with the Board of Administration of the California Public Employees' Retirement System (Special)
C-7399	Amends §§ 21.25.502A, 21.27.060A, 21.42.032, 21.42.050, 21.52.210, Tables 31-1, 32-1A, 32-1B, 33-2, 34-1, 35-1, 36-1, 41-7; adds § 21.45.115, zoning (21.25, 21.27, 21.31, 21.32, 21.33, 21.34, 21.35, 21.36, 21.41, 21.42, 21.45, 21.52)
C-7400	Authorizes agreement with Ussery Landscape for landscape maintenance services (Special)
C-7401	Authorizes agreement with Satsuma Landscape and Maintenance for services at Heartwell area parks (Special)
C-7402	Adds § 10.24.110 (60), traffic control (10.24)
C-7403	Amends a portion of Part 10 of official Use District Map (Special)
C-7404	Amends § 10.34.040 (593); adds § 10.34.040 (959)—(966); repeals § 10.34.040 (891), (918), (925), traffic control (Repealed by C-7469)
C-7405	Amends portions of Parts 5, 6, 9, 10, 11, 12, 14, 15, 18, 22, 23, 24, 28, 29 of official Use District Map (Special)
C-7406	Adds § 10.34.050 (49), (50), traffic control (Repealed by C-7469)

Ordinance Number	Disposition
C-7407	Adds §§ 10.20.070 (3006) —(3008), 10.24.075 (81), (82), 10.24.080 (90); amends § 10.24.120 (180), (121); repeals §§ 10.24.070 (297), 10.24.120(99), traffic control (10.20, 10.24)
C-7408	Amends § 2.03.040, order of business (2.03)
C-7409	Authorizes agreement with Azteca Landscape for services at certain North Long Beach parks (Special)
C-7410	Amends a portion of Part 17 of official Use District Map (Special)
C-7411	Amends §§ 10.20.070 (3005), 10.24.080 (89), 10.24.120 (43), traffic control (10.20, 10.24)
C-7412	Approves and adopts Redevelopment Plan for North Long Beach Redevelopment Project (Special)
C-7413	Amends §§ 18.04.090, 18.04.100, 18.12.100, 18.12.130, 18.12.140, 18.12.180, 18.12.202, 18.32.240, 18.32.250, 18.32.260, 18.32.290, 18.32.330, 18.36.250, 18.36.260, 18.44.310, 18.44.330, 18.44.340, 18.44.420; adds § 18.36.262, building, electrical, mechanical and plumbing fees (18.04, 18.12, 18.32, 18.36, 18.44)
C-7414	Adds §§ 10.08.120 (110), 10.34.040 (967)—(985); repeals § 10.34.040 (896), (954), (946), (961), traffic control (10.08, 10.34)
C-7415	Amends §§ 10.24.110 (3), 10.34.040 (661), (705), (902), (953); adds §§ 10.34.040 (986)—(997), 10.20.070 (3009)—(3011); repeals § 10.34.040 (466), (580), (737), (832), (858), (862), traffic control (10.20, 10.24, 10.34)
C-7416	Amends § 10.24.120 (137), traffic control (10.24)
C-7417	(Certification was not completed by January 1, 1997; by operation of ordinance, this ordinance did not become effective)
C-7418	Adds § 10.24.120 (171), traffic control (10.24)
C-7419	Amends §§ 18.12.052, 18.24.220, 18.36.190, 18.40.028, 18.44.230, 18.44.260, buildings and construction (18.12, 18.24, 18.36, 18.40, 18.44)
C-7420	Adds § 10.34.040 (998)—(1002); repeals § 10.34.040 (69), (788), traffic control (Repealed by C-7469)
C-7421	Amends Ord. C-5562, Downtown Shoreline Planned Development District (Special)
C-7422	Amends a portion of Part 9 of official Use District Map (Special)
C-7423	Amends §§ 5.02.020, 5.12.120, 5.12.160, 5.16.020, 5.34.070, 5.34.100, 5.36.020, 5.44.020, 5.44.040, 5.58.130, 5.80.310, 5.80.330, Chs. 5.04, 5.06, 5.08, 5.20, 5.32, 5.42, 5.46, 5.48, 5.52, 5.56, 5.62, 5.64, 5.66, 5.72, 5.74, 5.76, 5.82; adds §§ 5.44.045, 5.80.332, Chs. 5.65, 5.69, 5.75; repeals §§ 5.04.110, 5.12.130, 5.36.030, 5.44.050, 5.44.060, Chs. 5.10, 5.18, 5.22, 5.54, 5.84, regulation of business, trades and professions (5.02, 5.04, 5.06, 5.08, 5.10, 5.12, 5.16, 5.18, 5.20, 5.22, 5.32, 5.34, 5.36, 5.42, 5.44, 5.46, 5.48, 5.52, 5.54, 5.56, 5.58, 5.62, 5.64, 5.65, 5.66, 5.69, 5.72, 5.74, 5.75, 5.76, 5.80, 5.82, 5.84)
C-7424	Amends § 10.24.120 (15); adds § 10.20.070 (3012), traffic control (10.20, 10.24)
C-7425	Approves and adopts annual budget (Special)

Ordinance Number	Disposition
C-7426	Amends §§ 15.36.020B, 15.36.030B, 15.36.040B, 15.36.050B, 15.36.060B, 15.36.070B, 15.36.071B, 15.36.072B, 15.36.080A, B, natural gas service (15.36)
C-7427	Approves Res. WD-1082, water and sewer charges (Special)
C-7428	Amends Ord. C-6496, departmental organization of City (Special)
C-7429	Adds Ch. 16.55, Advertising on Public Property and Facilities, § 21.44.090A 8; repeals § 14.16.040, advertising on public property and facilities (14.16, 16.55, 21.44)
C-7430	Amends Ch. 1.20, Political Districts (1.20)
C-7431	Amends § 18.17.050G, transportation improvement fees (18.17)
C-7432	Adds §§ 10.20.070 (3013), 10.34.040 (1003)—(1016); repeals § 10.34.040 (383), (509), (683), (901), (949), traffic control (10.20, 10.34)
C-7433	Amends and readopts development and use standards for the Pacific Railway Planned Development District; amends Use District Map; repeals Ords. C-6254, C-6601, C-6737, C-7288, C-7360 (Repealed by C-7468)
C-7434	Amends § 5.72.120D; adds § 5.72.126, short-term entertainment permits (5.72)
C-7435	Authorizing contracts for City maintenance (Special)
C-7436	Adds § 10.34.040 (1017)—(1023); repeals § 10.34.040 (436), (827), traffic control (Repealed by C-7469)
C-7437	Amends a portion of Part 22 of official Use District Map (Special)
C-7438	Amends §§ 3.80.150, 3.80.180, 3.80.253, 3.80.422, business license fees (3.80)
C-7439	Designates Rose Park as historic landmark district (Special)
C-7440	Amends Ord. C-5562, Downtown Shoreline Planned Development District (Special)
C-7441	Adds § 10.24.070 (298), traffic control (10.24)
C-7442	Amends §§ 10.41.010, 10.41.040, 10.41.050, 10.41.060H, 10.41.070; adds § 10.41.110, use of City streets by overweight vehicles (10.41)
C-7443	Amends § 10.24.120 (60), traffic control (10.24)
C-7444	Authorizes agreement with Mariposa Horticultural Enterprises for landscape maintenance services (Special)
C-7445	Adds § 10.34.040 (1024)—(1031); repeals § 10.34.040 (725), (738), (902), (909), (959), (970), (973), (976), (982)(Repealed by C-7469)
C-7446	Amends § 10.24.120 (59), traffic control (10.24)
C-7447	Adds § 10.08.120 (111), traffic control (10.08)
C-7448	Adds §§ 16.52.980, 16.52.990, historic landmarks (16.52)
C-7449	Amends § 18.20.240A, appeals from the Board of Examiners, Appeals and Condemnation (18.20)
C-7450	Amends § 10.34.040 (1005); adds § 10.34.040 (1032)—(1039); repeals §§ 10.34.040 (277), (693), (522), (818), (854), (866), (975), (988), (989), (1023), traffic control (Repealed by C-7469)
C-7451	Adds § 10.08.120 (111), traffic control (10.08)

Ordinance Number	Disposition
C-7452	Adds §§ 10.20.070 (3014) —(3018), 10.24.120 (172), traffic control (10.20, 10.24)
C-7453	Adds § 10.48.070E, bicycle riding on sidewalks (10.48)
C-7454	Authorizes agreements with Mariposa Horticultural Enterprises and Landscape West, Inc. for landscape maintenance services (Special)
C-7455	Adds § 16.52.1000, historic landmarks (16.52)
C-7456	Temporary limitation of land uses within the proposed PD-30 area (Special)
C-7457	Adds §§ 10.24.070 (299), 10.34.040 (1040)—(1050); repeals § 10.34.040 (839), (864), (888), (903), (1028), traffic control (10.24, 10.34)
C-7458	Authorizes agreements with Empire Maintenance Company, Inc., and Come Land Maintenance Company, Inc. for custodial services (Special)
C-7459	Amends Ord. C-6496 relating to departmental organization of the City (Special)
C-7460	Adds Ch. 8.95, Domestic Partnership Registration (8.95)
C-7461	Amends §§ 5.36.020, 5.48.0100, 5.52.110, 5.66.045A, 5.72.126, 5.72.155, 5.82.120D, 5.82.120G, Ch. 5.40; adds § 5.04.030; repeals Ch. 5.14, technical corrections to Title 5 (5.04, 5.14, 5.36, 5.48, 5.52, 5.66, 5.72, 5.82, 5.40)
C-7462	Adds §§ 10.20.070(3019), (3020), traffic control (10.20)
C-7463	Amends § 18.56.050, street banners (Repealed by 07-0062)
C-7464	Adds §§ 10.24.076, 10.24.077, 10.24.078, 10.24.079, parking of oversized vehicles (10.24)
C-7465	Amends § 10.12.010.34; adds §§ 10.20.070(3021), (3022); repeals § 10.12.010.34c, traffic control (10.12, 10.20)
C-7466	Amends and readopts portions of Part 8 of the Use District Map; amends § 21.37.020; establishes the California State University Research and Technology Center/ Villages at Cabrillo Long Beach Vets PD-31 (21.37)
C-7467	Amending a portion of Part 8 of the Use District Map (Special)
C-7468	Amending and readopting development and use standards for the Pacific Railway Planned Development District; amending the Use District Map; repealing Ord. C-7433
C-7469	Amends §§ 10.34.010, 10.34.020, 10.34.030; adds §§ 10.34.005, 10.34.015, 10.34.025; repeals §§ 10.34.040, 10.34.050, traffic control (10.34)
C-7470	Adds §§ 10.34.040(1051)—(1058); repeals §§ 10.34.040(557), (621), (1008), traffic control (Repealed by C-7469)
C-7471	Amends Ch. 15.74, Cable System Regulatory Ordinance of the City of Long Beach (15.74)
C-7472	Amends § 15.36.020D3, therm allowance from gas department for medical conditions (15.36)
C-7473	Amends a portion of Part 26 of the Use District Map (Special)
C-7474	Adds §§ 10.20.070(3023)—(3026), traffic control (10.20)
C-7475	Amends a portion of Part 10 of the Use District Map (Special)
C-7476	Adds § 16.52.1010, historic landmarks (16.52)

Ordinance Number	Disposition
C-7477	Amends §§ 15.48.010C, 15.48.020, 15.48.030, 15.48.090; adds § 15.48.095, underground utility districts (15.48)
C-7478	Adds § 10.20.070(3027), traffic control (10.20)
C-7479	Adds Ch. 9.37, Long Beach Nuisance Code (9.37)
C-7480	Amends Ch. 3.52, Division VI, Structural Seismic Resistance and Structural Repair Assessment District Formation (3.52)
C-7481	Adds §§ 10.20.070(3028)—(3030), traffic control (10.20)
C-7482	Amends § 14.20.010B; adds §§ 14.20.010B1, C1, C2, E1, 14.20.110, newsracks (14.20)
C-7483	Adds Chs. 8.85, Underground and Aboveground Storage Tanks, 8.86, Hazardous Materials Release Response Plans and Inventory, 8.87, Hazardous Waste Control, designates Long Beach/ Signal Hill Unified Program Agency for administering and enforcing Chs. 6.5, 6.67, 6.7, 6.75, 6.95 and 6.11 of the California Health and Safety Code (8.85, 8.86, 8.87)
C-7484	Amends Ord. C-7384 relating to granting of easements by Board of Harbor Commissioners (Special)
C-7485	Adds § 10.24.100(64), limited parking areas designated (10.24)
C-7486	Adds District V to § 10.32.110, preferential parking district (10.32)
C-7487	Adds § 10.24.020D3, traffic control (10.24)
C-7488	Amends § 9.58.010, juvenile nighttime curfew ordinance (9.58)
C-7489	Amends a portion of Part 22 of the Use District Map (Special)
C-7490	Authorizes agreement with American Professional Security, Inc., for security guard services (Special)
C-7491	Amends § 10.24.120(113), traffic control (10.24)
C-7492	Amends §§ 14.20.010, 14.20.040I, display of harmful matter (14.20)
C-7493	Authorizes agreement with Wes Brook Landscape for landscape maintenance service (Special)
C-7494	Adds § 10.20.070(3031), traffic control (10.20)
C-7495	Adds § 10.24.020D4, traffic control (10.24)
C-7496	Amends and readopts development and use standards for Long Beach Airport Terminal Planned Development Plan; repeals Ords. C-5879, C-6779 (Special)
C-7497	Amends Ord. C-7439 to adjust the boundary of the Rose Park Historic District (Special)
C-7498	Adds § 16.52.1020, historic landmarks (16.52)
C-7499	Approves and adopts annual budget (Special)
C-7500	Amends §§ 20.32.690, 21.25.502, 21.25.506, 21.25.508, 21.27.130, 21.44.035, 21.44.070, 21.44.080, 21.44.090, 21.44.100, 21.44.110, 21.44.130, 21.44.230, 21.52.210, 21.52.233, Tables 33-2, 44-1, 44-2, 44-3, 44-4; adds §§ 21.15.2573, 21.15.2577, 21.44.105, 21.44.115, 21.52.229; repeals § 21.52.215, zoning regulations (20.32, 21.15, 21.25, 21.27, 21.44, 21.52)
C-7501	Amends a portion of Part 8 of the Use District Map (Special)
C-7502	Approves Res. WD-1099 establishing rates and charges for water and sewer service (Special)

Ordinance Number	Disposition
C-7503	Adds § 10.24.040(18), traffic control (10.24)
C-7504	Adds §§ 10.20.070(3032)—(3035), traffic control (10.20)
C-7505	Amends Ord. C-6496 relating to departmental organization of the City (Special)
C-7506	Amends District V of § 10.32.110; adds § 10.24.100(65), traffic control (10.24, 10.32)
C-7507	Amends §§ 21.62.010, 21.62.020, 21.62.040, 21.62.060, 21.62.070, 21.62.100, 21.62.110, 21.62.120, 21.62.130, 21.62.140, 21.62.150, 21.62.160, 21.62.180, 21.62.200, 21.62.210, 21.62.220, 21.62.230, 21.62.240; adds §§ 21.62.101, 21.62.155, 21.62.175, 21.62.176, 21.62.215, 21.62.216, 21.62.221, 21.62.222, 21.62.229, flood hazard regulations (21.62)
C-7508	Adds § 20.16.100, subdivision regulations (20.16)
C-7509	Adds § 10.20.070(3036); repeals § 10.24.120(63), traffic control (10.20, 10.24)
C-7510	Amends Downtown Shoreline Planned Development Plan (Special)
C-7511	Adds § 10.24.100(66), limited parking areas designated (10.24)
C-7512	Amends § 10.32.110, preferential parking districts (10.32)
C-7513	Temporary limitation of development in Belmont Heights (Special)
C-7514	Amends §§ 10.32.030, 10.32.040, 10.32.060, 10.32.070; repeals §§ 10.32.130, 10.32.140, parking (10.32)
C-7515	Adds § 10.20.070 (3037); amends § 16.20.080B, traffic control (10.20, 16.20)
C-7516	Adds § 10.20.070 (3038), traffic control (10.20)
C-7517	Amends § 5.48.010, hotel and motel rentals (5.48)
C-7518	Park and recreation impact fees designated for Jack Dunster Marine Biological Reserve (Special)
C-7519	Adds § 10.24.070 (300); amends § 10.24.070 (216), traffic control (10.24)
C-7520	Adds § 10.20.070 (3039), traffic control (10.20)
C-7521	Amends § 2.63.080, cultural heritage appeals (2.63)
C-7522	Amends § 21.62.170, 21.62.216, flood hazard regulations (21.62)
C-7523	Amends a portion of Part 20 of the Use District Map (Special)
C-7524	Amends a portion of Parts 5 and 11 of the Use District Map (Special)
C-7525	Adds § 10.24.076 (63), 10.24.110 (61); amends § 10.24.120 (117), traffic control (10.24)
C-7526	Amends § 10.12.010 (8), (8a), (11a), (12d), (22a), (45a), (48b), (Sla), (57b), (65a), (66a), § 10.12.020 (47a), traffic control (10.12)
C-7527	Adds § 10.20.070 (3040), traffic control (10.20)
C-7528	Amends Ord. C-5328 relating to the Southeast Area Development and Improvement Plan (Special)
C-7529	Adds § 10.08.120 (113); amends § 10.24.120 (23), traffic control (10.08, 10.24)
C-7530	Adds § 10.20.070(3041)—(3043), traffic control (10.20)
C-7531	Adds § 1.21.040, candidate ballot designations (1.21)

Ordinance Number	Disposition
C-7532	Amends a portion of Part 9 of the Use District Map (Special)
C-7533	Establishes Downtown Planned Development District, PD-30(Repealed by C-7694)
C-7534	Adds Ch. 18.90, Alternative Building Regulations for Live/Work Uses (18.90)
C-7535	Amends Ord. C-7510, Downtown Shoreline Planned Development District (Special)
C-7536	Adds § 10.20.070 (3044), (3045), 10.24.020D5, traffic control (10.20, 10.24)
C-7537	Adds § 16.52.1030, historic landmarks (16.52)
C-7538	Amends § 16.52.030, historic landmarks (16.52)
C-7539	Amends Ord. C-7279, Alamitos Land Planned Development District (Special)
C-7540	Amends § 10.20.070 (85), (86), traffic control (10.20)
C-7541	Temporary limitation on restaurant-related land uses (Special)
C-7542	Adds § 10.24.120 (173), traffic control (10.24)
C-7543	Adds § 10.20.070 (3046), (3047), traffic control (10.20)
C-7544	Adds §§ 21.62.151, 21.62.219; amends §§ 21.62.040, 21.62.060, 21.62.070B, 21.62.140B, 21.62.160, 21.62.180, 21.62.216, 21.62.229, 21.62.230; repeals §§ 21.62.221, 21.62.222, flood hazard regulations (21.62)
C-7545	Amends a portion of Part 8 of the Use District Map (Special)
C-7546	Amends § 5.58.060N, massage establishments (5.58)
C-7547	Adds § 10.20.070 (3048)—(3051), traffic control (10.20)
C-7548	Adds § 10.52.040M, roller-skating, and § 10.54.040II, skateboards (10.52, 10.54)
C-7549	Amends §§ 18.32.070, 18.32.200, 18.32.320, 18.44.230, 18.44.262; repeals §§ 18.32.080, 18.32.280, 18.32.370 through 18.32.490, 18.44.100 through 18.44.190, journeyman electricians and plumbers (18.32, 18.44)
C-7550	Adds §§ 21.15.1065, 21.15.2488, 21.15.2571, 21.27.160, 21.44.103; amends §§ 21.15.480, 21.15.490, 21.25.502, 21.27.090D2, Table 31-1, 21.31.230, 21.31.255, Table 33-2, Table 41-10, 21.44.035, 21.44.1150, 21.44.130, 21.44.140, 21.44.230A2; repeals § 21.44.080M, 1998 zoning amendment no. 1 (21.15, 21.25, 21.27, 21.31, 21.33, 21.41, 21.44)
C-7551	Amends § 10.24.070 (61), traffic control (10.24)
C-7552	Amends a portion of Part 18 of the Use District Map (Special)
C-7553	Adds § 16.52.1040, historic landmarks (16.52)
C-7554	Adds § 10.14.020A 105; amends § 10.12.020 (46), traffic control (10.12, 10.14)
C-7555	Amends a portion of Part 25 of the Use District Map (Special)
C-7556	Amends §§ 2.10, 2.11 and 2.14 of Ord. C-6072, personnel policy (Special)
C-7557	Amends Redevelopment Plan for Downtown Redevelopment Project (Special)
C-7558	Amends § 10.24.120 (63), traffic control (10.24)
C-7559	Amends §§ 2.03.020B, 2.03.040, City Council (2.03)

Ordinance Number	Disposition
C-7560	Adds § 10.24.100 (67), traffic control (10.24)
C-7561	Authorizes amendment to contract with California Public Employees' Retirement System (Special)
C-7562	Amends § 10.32.110, preferential parking districts (10.32)
C-7563	Adds § 10.20.070 (3052), (3053), traffic control (10.20)
C-7564	Approves and adopts annual budget (Special)
C-7565	Approves Res. WD-1111 establishing water and sewer rates and charges (Special)
C-7566	Approves and authorizes certain agreements regarding the Alameda Corridor Project (Special)
C-7567	Adds § 10.20.070 (3054), traffic control (10.20)
C-7568	Amends a portion of Part 10 of the Use District Map (Special)
C-7569	Amends § 10.24.075(45), (60); adds § 10.08.120 (114), traffic control (10.08, 10.24)
C-7570	Adds § 16.52.1050, historic landmarks (16.52)
C-7571	Amends a portion of Part 16 of the Use District Map (Special)
C-7572	Amends Ord. C-6496, relating to departmental organization (Special)
C-7573	Adds § 10.20.070(3055)—(3058), traffic control (10.20)
C-7574	Amends §§ 5.80.310 and 5.80.320; adds § 5.80.315, taxi driver permits (5.80)
C-7575	Amends downtown shoreline planned development district (Special)
C-7576	Amends Poly High Redevelopment Plan (Special)
C-7577	Adds Ch. 3.90; amends §§ 18.12.130, 18.32.240, 18.32.250, 18.32.260, 18.32.330, 18.36.250, 18.36.260, 18.44.310, 18.44.330, building, electrical, mechanical and plumbing fees and development services center surcharge (3.90, 18.12, 18.32, 18.36, 18.44)
C-7578	Transportation impact fee credit, American Stores Properties, Inc. (Special)
C-7579	Transportation impact fee credit, Vestar (Special)
C-7580	Adds §§ 14.14.035, 14.14.045; amends §§ 14.14.010, 14.14.020, 14.14.040, 14.14.050, 14.14.100, occupancy of public walkways (14.14)
C-7581	Adds Ch. 8.45, food facility (8.45)
C-7582	Amends a portion of part 17 of the use district map (Special)
C-7583	Limitation on restaurant related land uses (Special)
C-7584	Authorizes agreement with Azteca Landscape for landscape maintenance services (Special)
C-7585	Adds § 10.24.100 (68)—(70), limited parking areas designated (10.24)
C-7586	Adds § 10.24.076 (64), parking of oversized vehicles (10.24)
C-7587	Amends § 10.32.110V, preferential parking districts (10.32)
C-7588	Amends Pacific Railway planned development district development and use standards (Special)
C-7589	Amends downtown shoreline planned development district (Special)
C-7590	Amends §§ 16.08.750, 16.08.760, 16.08.780, 16.08.850, marinas (16.08)

Ordinance Number	Disposition
C-7591	Amends §§ 5.72.140, 5.72.145, 9.20.050, nudity and adult entertainment businesses (5.72, 9.20)
C-7592	Adds § 16.52.1070, historic landmarks (16.52)
C-7593	Adds § 16.52.1060, historic landmarks (16.52)
C-7594	Amends §§ 2.03.020B, 2.03.040, council meetings and order of business (2.03)
C-7595	Adds § 10.20.070 (3059)—(3065); amends § 10.12.010 (10)d, (10)e, (35)b, (39)a, § 10.12.020 (11)b, (11)c; repeals § 10.12.010 (10)f, traffic control (10.12, 10.20)
C-7596	Amends time limit for redevelopment plan for downtown redevelopment project (Special)
C-7597	Amends time limit for redevelopment plan for Poly High redevelopment project (Special)
C-7598	Amends downtown shoreline planned development district (Special)
C-7599	Adds §§ 10.24.076A (65), 10.24.100 (71), traffic control (10.24)
C-7600	Amends § 5.66.040, peddling (5.66)
C-7601	Adds §§ 8.60.010—111, 8.60.085, 8.60.087.5, 8.60.270; retitles Ch. 8.60; amends §§ 8.60.020, 8.60.025, 8.60.030, 8.60.040, 8.60.050, 8.60.060, 8.60.081, 8.60.082, 8.60.084, 8.60.086, 8.60.087, 8.60.088, 8.60.089, 8.60.090, 8.60.100, 8.60.110, 8.60.111, 8.60.113, 8.60.120, 8.60.130, 8.60.240, solid waste collection, recycling and litter prevention (8.60)
C-7602	Amends § 10.32.110, preferential parking districts (10.32)
C-7603	Adds § 10.20.070 (3066), (3067), traffic control (10.20)
C-7604	Adds § 10.24.100 (72)—(74), traffic control (10.24)
C-7605	Adds § 10.24.110 (62); repeals § 10.24.120 (156), traffic control (10.24)
C-7606	Amends § 10.32.110, preferential parking districts (10.32)
C-7607	Adds § 21.15.1765; amends §§ 21.25.502A4, 21.37.020, 21.41.233B, 21.45.130A, 21.46.070, 21.53.106, figures 15-2, 45-1, tables 31-2A, 32-1B, 43-1, 51-2; repeals § 21.15.1495, 2125 div X (21.25.1001—21.25.1008), 21.41.233A3, zoning regulations (21.15, 21.25, 21.31, 21.32, 21.37, 21.41, 21.43, 21.45, 21.46, 21.51, 21.53)
C-7608	Amends Ord. C-6496 relating to departmental organization (Special)
C-7609	Amends § 10.32.110, preferential parking districts (10.32)
C-7610	Adds § 10.24.076A (66,) traffic control (10.24)
C-7611	Amends § 16.08.650A, B2, vessel length in Marine Stadium (16.08)
C-7612	Adds § 16.52.1080, historic landmarks (16.52)
C-76l3	Amends a portion of part 16 of the use district map (Special)
C-76l4	Amends part 15 of use district map; amends Ord. C-7322 relating to Long Beach Boulevard planned development district (Special)
C-7615	Delegating powers and duties to the board of harbor commissioners (Special)
C-7616	Adds § 2.15.080, California law enforcement telecommunications system (2.15)

Ordinance Number	Disposition
C-7617	Amends §§ 21.25.506B, 21.25.508A, 21.44.090B, sign code (21.25, 21.44)
C-7618	Amends Ord. C-7541 relating to restaurant related land uses (Special)
C-7619	Amends §§ 21.15.750, 21.15.2332, 21.32.240F, 21.41.226A, 21.41.235, Belmont Shore land use and parking study (21.15, 21.32, 21.41)
C-7620	Amends §§ 2.36.020, 2.36.060, economic development commission (2.36)
C-7621	Amends § 1.22.020, petition circulators (Repealed by Ord. 05-0013)
C-7622	Adds §§ 18.24.081—18.24.116; amends §§ 18.12.051, 18.24.010, 18.24.020, 18.24.080, 18.24.120, 18.24.130, 18.24.160, 18.24.170, 18.24.180, 18.24.200, 18.24.220, 18.28.010, 18.36.010, 18.40.010; repeals §§ 18.40.027, 18.40.028, building codes (18.12, 18.24, 18.28, 18.36, 18.40)
C-7623	Adds § 10.24.076A (67), parking of oversized vehicles (10.24)
C-7624	Amends § 10.24.120 (76), limited parking areas (1024)
C-7625	Amends Ord. C-7528 relating to the southeast area development and improvement plan (Special)
C-7626	Adds § 14.14.055, entertainment on public right-of-way (14.14)
C-7627	Amends a portion of parts 11 and 28 of the use district map (Special)
C-7628	Amends § 2.66.020, redevelopment agency (2.66)
C-7629	Amends §§ 21.44.3100D, G, 21.45.010, Table 31-1, zoning (21.31, 21.44, 21.45)
C-7630	Adds § 14.20.010B1, C1, C2, E1; amends §§ 14.20.010B, 14.20.110, news racks (14.20)
C-7631	Adds § 10.20.070 (3068), (3069), traffic control (10.20)
C-7632	Adds § 3.52.726, judicial sales for assessment districts (3.52)
C-7633	Adds § 5.80.292, taxicabs (5.80)
C-7634	Adds §§ 5.40.015, 5.40.075, 5.40.080, 5.40.085, 5.40.090; amends §§ 5.40.010, 5.40.020, 5.40.030, 5.40.040, 5.40.070, garage sales (5.40)
C-7635	Authorizes agreement with California Western Arborists, Inc. (Special)
C-7636	Amends Ch. 3.52, Div. III, charitable institutions revenue bond law (3.52)
C-7637	Amends Ord. C-7598, Downtown Shoreline Planned Development District (Special)
C-7638	Amends § 10.14.020 B18, B19, one-way alleys (10.14)
C-7639	Adds Ch. 21.25, Div. XIII (21.25.1301)—(21.25.1317), reasonable accommodation (21.25)
C-7640	Adds § 10.08.120(115)—(118), traffic control (10.08)
C-7641	Adds § 10.20.070 (3070)—(3072), traffic control (10.20)
C-7642	Amends § 14.28.010, 14.28.020, 14.28.030, 14.28.040, 14.28.060, 14.28.090B, 14.28.110, 14.28.120, trees and shrubs (14.28)
C-7643	Adds § 10.52.040N, 10.54.040JJ, roller-skating and skateboards (10.52, 10.54)
C-7644	Adds § 10.24.076 A68, A69, parking of oversized vehicles (10.24)
C-7645	Adds § 10.20.070 (3073)—(3076), stop-controlled intersections (10.20)
C-7646	Approving and adopting annual budget (Special)

Ordinance Number	Disposition
C-7647	Approving Res. WD-1127, water and sewer charges (Special)
C-7648	Authorizing landscape maintenance service at Cesar E. Chavez Park (Special)
C-7649	Adds § 10.24.070 (301), traffic control (10.24)
C-7650	Amends § 2.84.010, purchasing authority (2.84)
C-7651	Adds § 10.20.070 (3077)—(3080), stop-controlled intersections (10.20)
C-7652	Amends Ord. C-6496 relating to departmental organization (Special)
C-7653	Levying special taxes within Community Facilities District No. 5 (Special)
C-7654	Amends §§ 10.12.010(16)c, 10.12.020(6)a, decreasing speed limits (10.12)
C-7655	Adds § 10.24.100 (76), limited time parking areas (10.24)
C-7656	Adds § 10.24.100 (75), limited time parking areas (10.24)
C-7657	Amends § 10.32.110, preferential parking districts (10.32)
C-7658	Amends portions of parts of the Use District Map (Special)
C-7659	Amends §§ 10.52.040M, 10.54.04011, roller-skating and skateboards (10.52, 10.54)
C-7660	Amends § 8.76.010A, reducing the time frame for completion of housing renovations (8.76)
C-7661	Adds § 2.01.390; amends §§ 2.01.210, 2.01.310, 2.01.410, 2.01.510, 2.01.630, 2.01.1010, 2.01.1030, Long Beach Campaign Reform Act (2.01)
C-7662	Confers powers upon the Board of Harbor Commissioners relating to conveyance of property (Special)
C-7663	Adds §§ 21.15.475, 21.15.2435, 21.15.2725, 21.44.106, 21.45.157, 21.45.165, 21.45.167, 21.52.212, 21.52.222, Tables 32-1, 32-2, 32-3; amends §§ 21.10.060, 21.15.290A3, 21.21.405, 21.25.403B, Ch. 21.27, 21.31.210, 21.31.245D, E, F2, 21.32.020, 21.32.040, 21.32.110, 21.32.120, 21.32.130, 21.32.2000, 21.32.205, 21.32.210, 21.32.220, 21.32.225A1, B1, 21.32.240, 21.33.160B, 21.34.2400, 21.34.250B, C, 21.35.235B, C, 21.41.206, 21.44.090A7b, 21.44.103A, Tables 30-1, 31-2A, 31-3, 32-1A, 32-2A, 32-3A; repeals §§ 21.15.200.5, 21.32.215, 21.41.201, 21.41.203, 21.41.211, Ch. 21.46, Tables 32-0.5, 32-1B, 32-2B, 32-3B, 32-30, 32-3D, 32-5A, 32-5B, zoning regulations (21.10, 21.15, 21.21, 21.25, 21.27, 21.30, 21.31, 21.32, 21.33, 21.34, 21.35, 21.41, 21.44, 21.45, 21.52)
C-7664	Amends Ord. C-7614, Long Beach Boulevard Planned Development District (Special)
C-7665	Adds § 18.12.095; amends §§ 8.76.010B5, 18.12.010D2, 18.16.150, 18.20.370, property maintenance violations and abatement of substandard building conditions (8.76, 18.12, 18.16, 18.20)
C-7666	Adds Ch. 6.22, Insect Control Measures (6.22)
C-7667	Adds § 10.20.070 (3081)—(3085), 10.24.120 (174), traffic control (10.20, 10.24)
C-7668	Temporary limitation of land uses within Planned Development District 22 (Special)
C-7669	Adds § 10.08.120 (119), 10.24.070 (302), traffic control (10.08, 10.24)
C-7670	Amends § 2.69.110B, violations during civil unrest (2.69)

Ordinance Number	Disposition
C-7671	Adds § 10.24.100 (77); amends § 10.32.110, limited time and preferential parking (10.24, 10.32)
C-7672	Adds § 16.52.1090, historic landmarks (16.52)
C-7673	Adds § 16.52.2000, historic landmarks (16.52)
C-7674	Levying special taxes within Community Facilities District No. 6(Special)
C-7675	Amends § 16.52.080, historic landmarks (16.52)
C-7676	Amends § 2.36.020, Economic Development Commission (2.36)
C-7677	Amends the California State University Research and Technology Center/ Villages at Oabrfflo Long Beach Vets PD-31 and adopts certain use and development standards (Special)
C-7678	Amends a portion of Part 10 of the Use District Map (Special)
C-7679	Adds § 16.52.2010, historic landmarks (16.52)
C-7680	Amends §§ 10.14.020A, 10.24.0200, traffic control (10.14, 10.24)
C-7681	Adds §§ 14.20.010K, 14.20.120, news racks (14.20)
C-7682	Amends § 10.30.010A1, A4, 10.30.080, beach area parking lots (10.30)
C-7683	Adds § 10.20.070 (3086)—(3090), stop intersections (10.20)
C-7684	Amends Ord. C-7533, map 1 of the downtown planned development district (PD-30) (Repealed by C-7694)
C-7685	Adds § 10.24.110 (63), (64), one-hour parking (10.24)
C-7686	Amends a portion of part 28 of the use district map (Special)
C-7687	Amends Ord. C-4918, granting the right, privilege and franchise to construct and operate facilities and equipment for electrical energy transmission and distribution to the Southern California Edison Company (Special)
C-7688	Amends § 10.32.110, preferential parking (10.32)
C-7689	Adds §§ 10.20.070 (3091) —(3093), 10.24.076A (70), traffic control (10.20, 10.24)
C-7690	Amends §§ 14.20.010B, C, H, I, J, 14.20.110, news racks (14.20)
C-7691	Adds § 5.80.135; amends § 5.80.060, vehicles for hire (5.80)
C-7692	Adds § 16.52.2020, historic landmarks (16.52)
C-7693	Adds § 16.52.2030, historic landmarks (16.52)
C-7694	Amends downtown planned development district '(PD-30); repeals Ords. C-7533, C-7684 (Special)
C-7695	Amends part 9 of the use district map; amends Ord. C-7322, Long Beach Boulevard planned development district (Special)
C-7696	Amends § 10.14.020B1, one-way alleys (10.14)
C-7697	Amends § 2 of Ord. C-4782 and § 15 of Ord. C-4703 (Special)
C-7698	Adds §§ 10.20.070 (3094)—(3099), 10.24.075 (83), 10.24.076A (71), 10.24.080 (91), traffic control (10.20, 10.24)
C-7699	Authorizes agreements with Grace Building Maintenance Company, Inc. (Special)
C-7700	Adds § 10.20.070 (3100)-.—(3102), 10.24.076A (72), traffic control (10.20, 10.24)
C-7701	Adds § 16.16.015, designated skate park (16.16)

Ordinance Number	Disposition
C-7702	Amends the California Heights historic landmark district (Special)
C-7703	Adds Ch. 18.95, NPDES and SUSMP regulations (18.95)
C-7704	Adds § 16.52.2040, historic landmarks (16.52)
C-7705	Approves and adopts annual budget (Special)
C-7706	Approves res. WD-1140, water and sewer charges (Special)
C-7707	Amends §§ 18.12.130, 18.12.190, building fees (18.12)
C-7708	Authorizes agreements for landscape maintenance services (Special)
C-7709	Adds § 10.24.100 (78), limited time parking (10.24)
C-7710	Amends § 10.32.110, preferential parking (10.32)
C-7711	Adds § 10.20.070 (3103)—(3105), traffic control (10.20)
C-7712	Amends Ord. C-7703 and Ch. 18.95, NPDES and SUSMP regulations (18.95)
C-7713	Amends §§ 5.72.115, 5.72.140, 9.20.050, nudity and adult entertainment businesses (5.72, 9.20)
C-7714	Amends Ord. C-6496 relating to departmental organization (Special)
C-7715	Amends a portion of part 29 of the Use District Map (Special)
C-7716	Adds § 10.20.070 (3106), (3107), stop intersections (10.20)
C-7717	Amends Ord. C-5670 and Ord. C-6462, downtown parking and business improvement area tax (Special)
C-7718	Adds §§ 10.20.070 (3108), (3109), 10.24.070(303), 10.24.076A (73), 10.24.120 (175), traffic control (10.20, 10.24)
C-7719	Amends downtown planned development district (PD-30) (Special)
C-7720	Amends § 2.01.310, campaign contribution limitations (2.01)
C-7721	Amends Ord. C-6356, Queensway Bay planned development district (PD-21) (Special)
C-7722	Confers upon and delegates powers and duties to the board of harbor commissioners (Special)
C-7723	Amends § 10.32.110, preferential parking (10.32)
C-7724	Amends Ord. C-7668, temporary limitation of land uses within planned development district 22 (Special)
C-7725	Amends § 14.14.050, downtown public walkway occupancy permits (14.14)
C-7726	Adds § 21.25.502A (6), 21.25.1311E, zoning regulations (21.25)
C-7727	Authorizes agreement for landscape maintenance services (Special)
C-7728	Amends § 1.24.050, voter pamphlet (1.24)
C-7729	Adds §§ 21.15.2795, 21.25.403G, 21.52.208; amends §§ 21.15.1330, 2125.502A2, 21.27.130, 21.32.230, 21.52.204, 21.52.247, Tables 32-1, 32-2, 32-2A; repeals § 21.32.240, zoning regulations (21.15, 21.25, 21.27, 21.32, 21.52)
C-7730	Adds §§ 10.24.076A (74), 10.24.080 (92), traffic control (10.24)
C-7731	Adds § 10.20.070 (3110)—(3112), traffic control (10.20)
C-7732	Authorizes certain lease agreement between city and redevelopment agency (Special)

Ordinance Number	Disposition
C-7733	Amends § 3.68.080, utility users tax (3.68)
C-7734	Amends § 10.24.120 (97), traffic control (10.24)
C-7735	Amends § 3.68.010, utility users tax (3.68)
C-7736	Adds § 10.24.080 (93), traffic control (10.24)
C-7737	Repeals Ord. C-7148, redevelopment plan and terminates central Long Beach redevelopment project (Special)
C-7738	Adopts redevelopment plan for central Long Beach redevelopment project (Special)
C-7739	Adds § 10.20.070 (3113), (3114), traffic control (10.20)
C-7740	Time period for filing declaration of candidacy, board of education district 3 special election (Special)
C-7741	Amends § 2.15.010A, police report copies, rescinds resolution C-27415 (2.15)
C-7742	Adds § 10.24.076A (75), traffic control (10.24)
C-7743	Amends and restates Kilroy airport center planned development district (PD-18) (Special)
C-7744	Authorizes amendment to city contract with the board of administration of the California public employees' retirement system (Special)
C-7745	Amends § 8.80.200M3, noise from leaf blowers (8.80)
C-7746	Adds §§ 10.24.076A 76, 10.52.0400, 10.54.040KK, traffic control (10.24, 10.52, 10.54)
C-7747	Adds § 5.72.121; amends §§ 5.72.120, 5.72.140, 5.72.145, permits for adult entertainment and similar activities (5.72)
C-7748	Amends § 3.68.080, utility users tax exemptions (3.68)
C-7749	Amends §§ 14.20.010, 14.20.110, news racks (14.20)
C-7750	Amends §§ 10.08.040, 10.08.120, 10.08.130, 10.20.030, 10.20.050, 10.24.010, 10.24.030, 10.24.075, 10.24.090; repeals §§ 10.20.070, 10.20.080, 10.24.020, 10.24.040, 10.24.050, 10.24.070, 10.24.080, 10.24.100, 10.24.110, 10.24.120, parking and traffic regulations (10.08, 10.20, 10.24)
C-7751	Temporary limitation of certain uses in the commercial highway zone (Special)
C-7752	Authorizes amendment to city contract with the board of administration of the California public employees' retirement system (Special)
C-7753	Authorizes amendment to city contract with the board of administration of the California public employees' retirement system (Special)
C-7754	Amends a portion of part 10 of the Use District Map (Special)
C-7755	Amends a portion of part 22 of the Use District Map (Special)
C-7756	Amends Ch. 1.20, political subdivisions or districts (1.20)
C-7757	Amends Ord. C-6356, Queens Way Bay planned development district (PD-21) (Special)
C-7758	Amends § 3.68.090, refund in lieu of exemption from utility users taxes (3.68)
C-7759	Designates the Rose park south area as a historic landmark district (Special)

Ordinance Number	Disposition
C-7760	Adds § 2.63.060K, recordation of landmarks and historic districts (2.63)
C-7761	Adds §§ 10.24.076A 77, 10.24.076A 78, parking restricted for oversized vehicles (10.24)
C-7762	Amends § 14.08.020, excavation permit required (Repealed by C-7933)
C-7763	Annual budget for fiscal year 2001—2002 (Special)
C-7764	Authorizes amendment to city contract with the board of administration of the California public employees' retirement system (Special)
C-7765	Approves res. WD-1146, water and sewer rates (Special)
C-7766	Amends § 10.12.010, speed limits increased (10.12)
C-7767	Amends § 15.44.060, utility permits (15.44)
C-7768	Terminates redevelopment project and rescinds Ord. C-7135 (Special)
C-7769	Amends Ch. 1.27, school board districts (1.27)
C-7770	Amends § 3.64.010E, 3.64.010G, transient occupancy tax (3.64)
C-7771	Adds § 16.52.2050, historic landmarks (16.52)
C-7772	Adds § 16.52.2060, historic landmarks (16.52)
C-7773	Executes an agreement for security guard services at city locations (Special)
C-7774	Amends Ord. C-6496, relating to departmental organization (Special)
C-7775	Amends California public employees' retirement system (Special)
C-7776	Adds §§ 21.15.2215, 21.15.3205, 21.15.3215, 21.51.110D; amends §§ 21.15.1330, 21.15.3210, 21.32.245B, 21.32.2450, 21.41.283, 21.44.110F1, 21.45.150H, 21.45.1501, figure 15-5, table 32-1, zoning regulations (21.15, 21.32, 21.41, 21.44, 21.45, 21.51)
C-7777	Adds § 21.52.208E; amends § 21.41.226A, zoning regulations (21.41, 21.52)
C-7778	Adds Ch. 5.71, publicly accessible exterior pay telephones (5.71)
C-7779	Amends § 18.12.190, special inspection fee (18.12)
C-7780	Amends §§ 21.15.2030, 21.51.210A, household pets (21.15, 21.51)
C-7781	Amends Ch. 6.20, fowl, rabbits and goats (6.20)
C-7782	Adds § 1.21.050, candidates' statements—general election (1.21)
C-7783	Adds § 3.80.148; amends §§ 3.80.210, 3.80.213, 3.80.216, 3.80.220, 3.80.226, 3.80.230, 3.80.233, 3.80.236, 3.80.240, 3.80.243, 3.80.250, 3.80.253, 3.80.256, 3.80.421 (7B), 3.80.451, business license taxes (3.80)
C-7784	Amends Pacific Railway planned development district development use and standards (Special)
C-7785	Amends § 1.27.010, school board districts established (1.27)
C-7786	Adds § 8.68.021, definition of playground for purposes of California Health & S. C. § 1044.95(Repealed by C-7955)
C-7787	Adds §§ 10.24.076A 79, 10.24.076A 80, parking of oversized vehicles (10.24)
C-7788	Amends a portion of part 16 of the use district map (Special)

Ordinance Number	Disposition
C-7789	Amends §§ 6.16.100B, 6.16.1000, dog exercise areas (6.16)
C-7790	Amends a portion of parts 8, 9 of the use district map (Special)
C-7791	Amends Ch. 5.60, parades and special events (5.60)
C-7792	Amends § 15.36.120, low income gas discount (15.36)
C-7793	Amends Ord. C-6496, relating to departmental organization (Special)
C-7794	Amends Ord. C-5561, Long Beach marina planned development (Special)
C-7795	Amendment to leases at Kilroy airport center (Special)
C-7796	Amends §§ 14.14.010, 14.14.020, 14.14.040, 14.14.045B, public walk-ways occupancy permits (14.14)
C-7797	Adds § 1.21.060, order of candidates' names on general election ballot (1.21)
C-7798	Adds §§ 10.24.076A81, 10.24.076A82, parking of oversized vehicles (10.24)
C-7799	Amends § 5.04.050A, health inspection fees and permit (5.04)
C-7800	Amends § 10.22.080, parking vehicles for sale (10.22)
C-7801	Amends § 10.24.030, 10.32.020, parking regulations (10.24, 10.32)
C-7802	Designates Belmont Heights historic landmark district (Special)
C-7803	Adds § 16.52.2070, historic landmarks (16.52)
C-7804	Adds § 10.24.076A83, parking of oversized vehicles (10.24)
C-7805	Adds §§ 2.93.060, 2.93.070, hearing procedures on contractor's or vendor's nonresponsibility or debarment (2.93)
C-7806	Amends a portion of part 9 of the Land Use District Map (Special)
C-7807	Adds Ch. 18.96, visitability of dwelling units (18.96)
C-7808	Authorizes execution of amended and restated lease no. WDL-96 (Special)
C-7809	Amends § 3.68.080A, 3.68.080B, utility users tax exemptions (3.68)
C-7810	Amends §§ 14.20.010, 14.20.110, news rack regulations (14.20)
C-7811	Amends § 10.32.110, preferential parking district (10.32)
C-7812	Amends California public employees' retirement system (Special)
C-7813	Amends the use district map to reflect zone changes (Special)
C-7814	Amends Ord. C-5963, regarding terms of members of the Belmont Shore parking and business improvement area advisory commission (Special)
C-7815	Amends § 1.32.010, criminal violations (1.32)
C-7816	Repeals § 10.38.090D, streets closed to vehicles (10.38)
C-7817	Temporary limitation of certain land uses (Special)
C-7818	Temporary limitation of certain land uses (Special)
C-7819	Adds Ch. 2.86, public contracts (2.86)
C-7820	Approves resolution WD-1158, water and sewer rates (Special)
C-7821	Amends Ch. 3.90, surcharge for the development services center (3.90)
C-7822	Amends Ch. 18.48, fire code (18.48)

Ordinance Number	Disposition
C-7823	Adds §§ 18.04.040, 18.16.055, 18.20.085, 18.28.020, 18.28.030, 18.36.015, 18.36.040, 18.40.022, and Ch. 18.99; amends §§ 18.04.010, 18.04.020, 18.04.100, 18.08.020, 18.08.220, 18.12.010, 18.12.020, 18.12.050, 18.12.051, 18.12.052, 18.12.070, 18.12.230, 18.16.040, 18.16.050, 18.16.060, 18.16.160, 18.16.180, 18.16.200, 18.20.060, 18.20.080, 18.28.010, 18.32.030, 18.32.330, 18.36.010, 18.36.020, 18.36.030, 18.36.060, 18.36.070, 18.36.250, 18.36.260, 18.40.010, 18.40.020, 18.40.025, 18.44.090, 18.44.330, 18.68.021, 18.95.020, 18.95.030, 18.95.040, and Ch. 18.24; repeals §§ 18.04.030, 18.04.040, 18.04.050, 18.04.080, and 18.32.190, California building code (18.04, 18.08, 18.12, 18.16, 18.20, 18.24, 18.28, 18.32, 18.36, 18.40, 18.44, 18.68, 18.95, 18.99)
C-7824	Adopts official budget for fiscal year 2002-2003 (Special)
C-7825	Adds § 10.24.076A84, parking of oversized vehicles (10.24)
C-7826	Adds § 21.52.219.5; amends Ch. 21.35 and §§ 21.15.565, 21.15.2260; repeals § 21.52.253, zoning regulations (21.15, 21.35, 21.52)
C-7827	Amends Ord. C-7528 relating to the Southeast Area development and improvement plan (Special)
C-7828	Amends Ord. C-7598, Downtown Shoreline planned development district (Special)
C-7829	Amends Queensway Bay planned development district (Special)
C-7830	Amends Downtown planned development district (Special)
C-7831	Amends portions of the Use District Map (Special)
C-7832	Amends § 10.30.080, prohibition against overnight parking in designated lots (10.30)
C-7833	Amends Ord. C-5561, Long Beach marina planned development (Special)
C-7834	Amends § 2.27.020, airport advisory commission members (2.27)
C-7835	Amends Ord. C-6496, relating to departmental organization (Special)
C-7836	Amends § 2.63.070F, procedures for administering certificate of appropriateness (2.63)
C-7837	Amends § 1.20.0100, 1.20.010D, political districts established (1.20)
C-7838	Adds § 12.08.255, area 24—Bellflower oil drill site (12.08)
C-7839	Adds Ch. 2.07, code of ethics (2.07)
C-7840	Establishes time period for filing declarations of candidacy for office of member of school district board (Special)
C-7841	Adds § 10.24.076A85, parking of oversized vehicles (10.24)
C-7842	Adds § 1.24.140, time limits on challenges to ballot materials (1.24)
C-7843	Adds § 10.14.020A106, one-way street designations (10.14)
C-7844	Adds § 10.24.076A 86, 87, 88, 89 and 90, parking of oversized vehicles (10.24)
C-7845	Amends a portion of part 14 of the Use District Map (Special)
C-7846	Determines the California State University, Long Beach foundation is due a credit against the transportation improvement fee (Special)
C-7847	Adds § 10.16.040, closure of streets during school hours (10.16)

Ordinance Number	Disposition
C-7848	Amends § 16.04.040, Belmont Veterans' Memorial Pier—prohibited acts (16.04)
C-7849	Adds § 3.80.440, assessments, presumption and statute of limitations; amends § 3.80.421.1, 3.80.427.1, application—investigation and refund (3.80)
C-7850	Amends Ch. 10.41, use of streets by overweight vehicles (10.41)
C-7851	Amends § 10.16.030, closure of streets during school hours (10.16)
C-7852	Amends § 2.03.020B, city council meetings (2.03)
C-7853	Adds Ch. 9.40, seizure, impoundment and forfeiture of vehicles; repeals Ch. 9.40, premises off limits to military personnel (9.40)
C-7854	Adds § 16.52.2080, historic landmarks (16.52)
C-7855	Adds § 16.52.2090, historic landmarks (16.52)
C-7856	Adds § 10.12.020A66; amends §§ 10.12.010A34, 10.12.010A45, 10.12.010A54, 10.12.020A13, speed limits (10.12)
C-7857	Amends §§ 10.22.080E, 10.22.080T, parking vehicles for sale (10.22)
C-7858	Adds §§ 10.24.076A 91, 92, 93, parking of oversized vehicles (10.24)
C-7859	Adds § 6.16.310, dog exercise area on the beach (6.16)
C-7860	Amends §§ 14.20.010, 14.20.110, news racks (14.20)
C-7861	Adds §§ 10.14.020A107, 10.14.020A108, 10.14.020A109, 10.14.020A110, 10.14.020A111, one-way traffic operations (10.14)
C-7862	Adds § 9.40.090D, domestic partnership exemption (9.40)
C-7863	Adds § 2.84.020, nondiscrimination in city contracts and purchase orders (2.84)
C-7864	Adds § 10.24.076A94, parking of oversized vehicles (10.24)
C-7865	Amends § 2.66.020, redevelopment agency members and appointment (2.66)
C-7866	Amends ordinances C-7817, C-7818, temporary limitation of certain land uses (Special)
C-7867	Makes findings and determinations for contract work for tree trimming services (Special)
C-7868	Amends §§ 15.44.010, 15.44.030, 15.44.060, 15.44.100, 15.44.110, 15.44.230, pipelines (15.44)
C-7869	Adds § 10.24.150; amends §§ 10.24.010, 10.24.130, motorcycle parking (10.24)
C-7870	Designates the Eliot Lane historic landmark district (Special)
C-7871	Makes findings and determinations for contract work for tree trimming services (Special)
C-7872	Delegates additional powers and duties to the board of harbor commissioners in relation to 2,228 square feet of railroad right-of-way in Vernon (Special)
C-7873	Annual appropriation budget (Special)
C-7874	Approves resolution WD-1184, water and sewer service rates and charges (Special)
C-7875	Adds Ch. 3.91, surcharge on building, zoning and related permit fees (Repealed by 05-0022)
C-7876	Amends § 5.40.020, garage sale permit required (5.40)
C-7877	Amends § 16.08.460, fishing restrictions (16.08)

Ordinance Number	Disposition
C-7878	Adds § 10.24.076A95, parking of oversized vehicles (10.24)
C-7879	Adds § 16.16.130, biological reserve prohibitions (16.16)
C-7880	Adds Ch. 2.02, campaign disclosure statements (2.02)
C-7881	Adds §§ 21.15.607, 21.25.503D, 21.52.220.5; amends § 21.25.506, Ch. 21.32, table 32-1, Ch. 21.34, table 34-1; amends §§ 21.52.203, 21.52.256, design review process, computer arcades, vehicle sales event (21.15, 21.25, 21.32, 21.34, 21.52)
C-7882	Amends and restates the Atlantic Avenue planned development district (Special)
C-7883	Amends and restates the Long Beach Boulevard planned development district (Special)
C-7884	Amends and restates the downtown planned development district (Special)
C-7885	Eliminates the existing time limit on incurring debt for the redevelopment plan for the Poly High redevelopment project (Special)
C-7886	Eliminates the existing time limit on incurring debt for the redevelopment plan for the West Beach redevelopment project (Special)
C-7887	Eliminates the existing time limit on incurring debt for the redevelopment plan for the west Long Beach industrial redevelopment project (Special)
C-7888	Adds § 10.24.076 A96, A97, parking of oversized vehicles (10.24)
C-7889	Amends § 10.32.110, preferential parking district (10.32)
C-7890	Amends § 10.32.110, preferential parking district (10.32)
C-7891	Adds § 16.52.2100, historic landmarks (16.52)
C-7892	Adds § 16.52.2110, historic landmarks (16.52)
C-7893	Adds § 16.52.2120, historic landmarks (16.52)
C-7894	Park dedication (Special)
C-7895	Adds table 35-2, Ch. 21.35; amends § 21.35.010, purpose and park dedication /designation (21.35)
C-7896	Amends § 10.32.110, preferential parking district (10.32)
C-7897	Departmental organization (Special)
C-7898	Authorizes the city manager to execute an agreement (Special)
C-7899	Adds Ch. 2.09, revolving door restrictions (2.09)
C-7900	Amends and restates the Long Beach Boulevard planned development district (Special)
C-7901	Amends § 6.16.310, dog exercise area on the beach (6.16)
C-7902	Amends § 10.32.110, preferential parking district (10.32)
C-7903	Amends § 10.32.110, preferential district (10.32)
C-7904	Adds § 21.52.219.7; amends §§ 21.15.570, tables 32-1, Ch. 21.32, 33-2, Ch. 21.33 and amends planned development districts (PD-i), (PD-l5), (PD-18), (PD-22), (PD-26), (PD-29), (PD-30), commercial storage and self-storage (21.15, 21.32, 21.33, 21.52)
C-7905	Rezone (Special)
C-7906	Rezone (Special)
C-7907	Amends § 10.32.110, preferential parking district (10.32)
C-7908	Rezone (Special)

Ordinance Number	Disposition
C-7909	Amends time limitations for the central redevelopment project (Special)
C-7910	Amends time limitations for the downtown redevelopment project (Special)
C-7911	Amends time limitations for the Los Altos redevelopment project (Special)
C-7912	Amends time limitations for the north Long Beach redevelopment project (Special)
C-7913	Amends time limitations for the Poly High redevelopment project (Special)
C-7914	Amends time limitations for the West Beach redevelopment project (Special)
C-7915	Adds § 10.22.080X, parking vehicles for sale (10.22)
C-7916	Adds § 16.52.2150, historic landmarks (16.52)
C-7917	Adds § 16.52.2130, historic landmarks (16.52)
C-7918	Adds § 16.52.2140, historic landmarks (16.52)
C-7919	Adds § 16.52.2160, historic landmarks (16.52)
C-7920	Amends § 10.28.130, parking meter zones (10.28)
C-7921	Adds § 10.22.080Y, parking vehicles for sale (10.22)
C-7922	Amends § 2.84.010, authority of city purchasing agent and others to contract (2.84)
C-7923	Amends §§ 14.20.010, 14.20.110, news racks (14.20)
C-7924	Amends § 10.38.020, driving on sidewalks (10.38)
C-7925	Adds § 16.08.460I; amends § 16.08.460E, fishing restrictions (16.08)
C-7926	Adds § 16.16.010O, P, Q; amends §§ 16.08.581, 16.12.190, 16.16.010L, M, N, watercraft regulations (16.08, 16.12, 16.16)
C-7927	Adds § 10.58.060 (28), crosswalk locations (10.58)
C-7928	Makes findings and determinations regarding contract work for landscape maintenance services (Special)
C-7929	Repeals and replaces Ch. 14.20, newsracks (14.20)
C-7930	Amends § 10.04.050A, parking control checker authority (10.04)
C-7931	Amends franchise agreement (Special)
C-7932	Amends § 6.16.310, dog exercise area on the beach (6.16)
C-7933	Repeals and replaces Ch. 14.08; repeals Ch. 14.06, excavations, street improvements and temporary occupation of public rights-of-way (14.06, 14.08)
C-7934	Adds § 2.84.040; amends §§ 5.28.051, 5.28.071C, 5.38.080, 5.38.090, 5.47.090, 5.50.010, 5.60.080B, 5.61.080, 5.64.040B, 5.66.060K, 5.68.200, 5.80.050, 5.82.120C, M, 5.86.120, 8.60.081, 10.60.040, 14.04.050C, 14.14.080, 14.16.080, 15.44.190, 15.44.230, 15.74.050, 16.44.153A7, 16.47.030C, E, 18.48.340 (not codified), 18.48.360 (not codified), 18.52.130; repeals § 5.04.080, insurance and bond requirements (2.84, 5.04, 5.28, 5.38, 5.47, 5.50, 5.60, 5.61, 5.64, 5.66, 5.68, 5.80, 5.82, 5.86, 8.60, 10.60, 14.04, 14.14, 14.16, 15.44, 15.74, 16.44, 16.47, 18.48, 18.52)
C-7935	Amends § 10.32.110, areas designated for preferential parking (10.32)

Ordinance Number	Disposition
C-7936	Adds § 10.22.080Z, parking vehicles for sale (10.22)
C-7937	Designates the Bluff Heights historic landmark district (Special)
C-7938	Adds § 2.84.030, local preference for contracts (2.84)
C-7939	Amends § 10.32.110, areas designated for preferential parking (10.32)
C-7940	Temporary limitation on removal of any protected oak tree within city (Special)
C-7941	Amends a portion of Part 28 of the Use District Map (Special)
C-7942	Amends the contract between the city and board of administration of the California public employees' retirement system (Special)
C-7943	Approves and adopts the official budget of the city for fiscal year 2004-2005 (Special)
C-7944	Amends and restates the Los Alamitos land planned development district (Special)
C-7945	Amends a portion of Part 10 of the Use District Map (Special)
C-7946	Adds § 16.16.017; amends § 16.16.015G, J, BMX bicycles in designated skateparks (16.16)
C-7947	Amends § 10.14.020A71, designated one-way streets (10.14)
C-7948	Approves Res. WD-1195 (Special)
C-7949	Adds § 10.24.076A98, A99, parking oversized vehicles (10.24)
C-7950	Amends and restates the downtown development district (Special)
C-7951	Amends §§ 6.16.090, 6.16.210, 6.16.310, dogs on beaches, school grounds and exercise areas (6.16)
C-7952	Rezones (Special)
C-7953	Adds § 10.12.010A71; amends §§ 10.12.010A4a, A10e, A26b, A34e, A34f, A35b, A36c, 10.12.020A4a, A8d, A8e, A11a, A11e, A44a, speed limits (10.12)
C-7954	Amends and restates Ord. C-7894 (Special)
C-7955	Repeals and replaces Ch. 8.68, smoking in public places (8.68)
C-7956	Amends portions of Part 17, 24 of the Use District Map (Special)
C-7957	Amends and restates the Douglas Aircraft planned development district (Special)
C-7958	Establishes the Douglas park planned development district (Special)
C-7959	Amends §§ 8.80.160, 21.29.090, 21.37.020, noise district map and approved development agreements (8.80, 21.29, 21.37)
C-7960	Approves application for a development agreement (Special)
C-7961	Adds §§ 21.51.226, 21.51.237; amends §§ 21.15.110G, 21.15.607, computer arcades, computer cafes, live nude art drawing (21.15, 21.51)
C-7962	Finds and determines a credit due against CSULB Foundation transportation improvement impact fee (Special)
C-7963	Amends time limitations for the Poly High redevelopment project (Special)
C-7964	Amends time limitations for the West Beach redevelopment project (Special)
C-7965	Amends time limitations for the downtown redevelopment project (Special)
C-7966	Amends § 2.03.040, order of business (2.03)

Ordinance Number	Disposition
C-7967	Amends § 1.21.010, canvass of returns (1.21)
C-7968	Establishes a moratorium on interior alteration of existing multifamily residential units (Special)
C-7969	Amends §§ 10.30.010A1, A4, 10.30.080A, 10.30.120A, 10.30.122, parking lot provisions (10.30)
C-7970	Amends § 10.32.110, areas designated for preferential parking (10.32)
C-7971	Approves and adopts the ninth amendment to the Poly High redevelopment plan (Special)
C-7972	Departmental organization (Special)
05-0001	Adds Art. IX, Ch. 9.65; amends § 1.32.010E, administrative citations and penalties (1.32, 9.65)
05-0002	Adds Ch. 8.59, lot fencing (8.59)
05-0003	Adds Ch. 8.46, disposal of fats, oils and grease (8.46)
05-0004	Amends §§ 15.40.070, 15.40.090A, E, gas utility service, meter reading, billing and payment (15.40)
05-0005	Adds § 16.52.2170, Delker House (16.52)
05-0006	Amends § 10.32.110, areas designated for preferential parking (10.32)
05-0007	Adds Ch. 21.65; amends §§ 21.60.210—21.60.340, zoning (21.60, 21.65)
05-0008	Establishes a moratorium on the establishment of medical marijuana dispensaries (Special)
05-0009	Amends and restates the downtown planned development district (Special)
05-0010	Adds §§ 3.64.055, 3.64.085, 3.64.112, 3.64.115, 3.64.130, 3.64.150, 3.64.160; amends §§ 3.64.010A, B, C, D, F, I, L, M, N, O, 3.64.020, 3.64.040, 3.64.050, 3.64.080, 3.64.090, 3.64.100A, 3.64.110, 3.64.120, transient occupancy tax (3.64)
05-0011	Amends and restates Long Beach Boulevard planned development district (Special)
05-0012	Amends Part 15 of the Use District Map (Special)
05-0013	Repeals and replaces Ch. 1.22, referenda and initiatives (1.22)
05-0014	Amends § 2.57.020, members of senior citizen advisory commission (2.57)
05-0015	Adds §§ 8.68.065, 16.16.010R; amends § 8.68.020, smoking definitions and prohibitions (8.68, 16.16)
05-0016	Amends § 14.20.210, downtown pilot program area (14.20)
05-0017	Amends § 14.20.200C, Belmont Shore newsrack regulation section sunset clause (14.20)
05-0018	Establishes the Long Beach tourism business improvement area (Special)
05-0019	Authorizes city contract with Azteca Landscape and Midori Gardens (Special)
05-0020	Amends § 2.84.030C, local preference contracts (2.84)
05-0021	Finds and determines a transportation impact fee credit is owed to LBWTC real estate partners (Special)
05-0022	Repeals and replaces Ch. 3.91, surcharge on building, zoning and related permit fees (3.91)

Ordinance Number	Disposition
05-0023	Adds § 1.21.070, elections in which one or only one candidate files nomination papers (1.21)
05-0024	Amends § 10.32.110, preferential parking district areas (10.32)
05-0025	Adds §§ 10.24.078, 10.24.005; amends and renumbers §§ 10.24.077 as 10.24.079, 10.24.079 as 10.24.077, 10.24.078 as 10.24.080; amends § 10.24.076, oversized vehicle parking regulations (10.24)
05-0026	Adds § 2.63.050L, M, preservation of historically significant trees (2.63)
05-0027	Amends § 18.28.010, adoption of electrical code (18.28)
05-0028	Adds §§ 10.12.010A71a, 10.12.020A67a; amends §§ 10.12.020A25b, A36b, speed limits (10.12)
05-0029	Adds § 10.14.020A112, one-way traffic streets designated (10.14)
05-0030	Repeals and replaces Ch. 5.46, handbills and advertising (5.46)
05-0031	Adds Ch. 5.51, ice cream trucks (5.51)
05-0032	Adopts official budget for fiscal year 2005-2006 (Special)
05-0033	Amends and restates the downtown shoreline planned development district (Special)
05-0034	Approves Res. WD-1203 (Special)
05-0035	Amends §§ 14.32.060, 18.12.190, 18.12.202, 18.12.230C, 18.16.180, building development fees (14.32, 18.12, 18.16)
05-0036	Adds Ch. 9.31, loud parties on private property (9.31)
05-0037	Adds § 21.27.065; amends § 21.27.060C, D, nonconforming residential uses and parking (21.27)
05-0038	Amends § 21.41.253, curb cuts and driveways (21.41)
05-0039	Adds § 21.25.502A7; amends § 21.41.226, nonconforming parking areas (21.25, 21.41)
05-0040	Temporary limitation of certain used automobile sales businesses (Special)
05-0041	Adopts amendment to Ord. C-6496, departmental organization (Special)
05-0042	Amends and restates the downtown development district (PD-30) (Special)
06-0001	Amends and restates the development and use standards for the southeast area development and improvement plan (Special)
06-0002	Amends and restates the development and use standards for the Pacific Railway planned development district (Special)
06-0003	Amends Parts 9, 11 and 22 of the official Use District Map (Special)
06-0004	Amends Table 35-2, zoning (21.35)
06-0005	Dedicates certain lands in perpetuity for public park purposes and uses (Special)
06-0006	Amends § 1.32.030, general penalty (1.32)
06-0007	Amends § 10.22.080, parking regulations (10.22)
06-0008	Authorizes the city manager to execute contract with Contact Security Inc. for security guards at various locations (Special)
06-0009	Amends § 14.14.050, occupation of public walkways (14.14)
06-0010	Adds §§ 5.72.200—5.72.220, entertainment and similar activities (5.72)

Ordinance Number	Disposition
06-0011	Amends §§ 3.48.040, 3.64.055, 3.68.090, 3.68.160, 3.80.427.1 and 15.40.075, claims and refunds and taxes (3.48, 3.64, 3.68, 3.80, 15.40)
06-0012	Adds § 6.16.085; amends §§ 6.16.060, 6.16.080, 6.16.190, 9.65.060 and 21.51.210, various provisions (6.16, 9.65, 21.51)
06-0013	Adds Ch. 8.61, shopping carts (8.61)
06-0014	Amends § 10.14.020, one-way streets and alleys (10.14)
06-0015	Amends Ch. 10.28, parking meters (10.28)
06-0016	Amends § 16.08.990, marinas (16.08)
06-0017	Amends Part 16 of the official Use District Map (Special)
06-0018	Amends Part 23 of the official Use District Map (Special)
06-0019	Amends Part 14 of the official Use District Map (Special)
06-0020	Adds § 21.21.507, zoning (21.21)
06-0021	Adds Ch. 3.92, housing trust fund (3.92)
06-0022	Amends Ords. C-5670 and C-6462, downtown parking and business improvement area tax (Special)
06-0023	Amends § 14.20.200, newsracks (14.20)
06-0024	Amends and restates the downtown shoreline planned development district (Special)
06-0025	Amends § 9.58.020, loitering (9.58)
06-0026	Amends portion of Part 23 of official Use District Map (Special)
06-0027	Approves and authorizes amendment to certain agreements regarding the Alameda Corridor Project (Special)
06-0028	Authorizes amendment to city contract with the board of administration of the California public employees' retirement system (Special)
06-0029	Amends §§ 15.48.010 and 15.48.090, underground utility districts (15.48)
06-0030	Amends § 10.66.050, control of vehicular cruising (10.66)
06-0031	Amends [adds] § 10.28.130, parking meters (10.28)
06-0032	Adopts official budget for fiscal year 2006-2007 (Special)
06-0033	Amends and restates the downtown planned development district (Special)
06-0034	Amends portion of Part 11 of official Use District Map (Special)
06-0035	Adds § 3.68.065; amends §§ 3.68.050 and 3.68.160, utility users tax (3.68)
06-0036	Amends Ord. C-5963, Belmont Shore parking and business improvement area (Special)
06-0037	Amends Ord. C-6646, Bixby Knolls parking and business improvement area (Special)
06-0038	Approves Res. WD-1219 (Special)

Ordinance Number	Disposition
06-0039	Amends §§ 3.90.020, 3.91.020, 10.50.080, 14.32.060, 16.08.970, 18.04.090, 18.04.100, 18.12.060, 18.12.070, 18.12.100, 18.12.120—18.12.190, 18.12.200—18.12.202, 18.12.230, 18.12.240, 18.16.080, 18.16.180, 18.20.100, 18.24.720, 18.32.240—18.32.290, 18.32.330, 18.36.250, 18.36.260, 18.36.262, 18.44.310, 18.44.330, 18.44.340, 18.44.420 and 18.52.200; repeals §§ 18.12.195 and 18.24.700, various provisions (3.90, 3.91, 10.50, 14.32, 16.08, 18.04, 18.12, 18.16, 18.20, 18.24, 18.32, 18.36, 18.44, 18.52)
06-0040	Adds § 21.15.2985; amends Tables 32-1 and 33-2, zoning (Repealed by 07-0057)
06-0041	Amends and restates the Atlantic Avenue planned development district (Special)
06-0042	Amends and restates the Long Beach Boulevard planned development district (Special)
06-0043	Amends and restates the downtown planned development district (Special)
06-0044	Amends Table 51-2 of § 21.51.235, zoning (21.51)
06-0045	Amends Ch. 21.63, zoning (21.63)
06-0046	Amends § 10.32.110, preferential parking district areas (10.32)
06-0047	Amends § 14.20.210, newsracks (14.20)
06-0048	Amends § 10.14.020, one-way streets and alleys (10.14)
06-0049	Amends and restates the downtown planned development district (Special)
06-0050	Adds § 2.07.020, code of ethics (2.07)
06-0051	Authorizes the executive director to execute an agreement (Special)
06-0052	Authorizes the executive director to execute a grant deed (Special)
06-0053	Extends temporary limitation of certain used automobile sales businesses (Special)
06-0054	Amends §§ 15.44.010, 15.44.060 and 15.44.100, pipelines and utilities (15.44)
06-0055	Amends § 16.08.740, marinas (16.08)
06-0056	Adopts amendment to Ord. C-6496, departmental organization (Special)
06-0057	(Vetoed)
06-0058	Amends Table 31-1, zoning (21.31)
06-0059	Amends Ch. 1.28, record retention (1.28)
06-0060	Amends § 10.22.080, parking regulations (10.22)
06-0061	Extends time limit for redevelopment plan for Poly High redevelopment project (Special)
06-0062	Extends time limit for redevelopment plan for West Beach redevelopment project (Special)
07-0001	Amends § 5.72.200, entertainment and similar activities (5.72)
07-0002	Amends portion of Parts 21, 22, 27 and 28 of official Use District Map (Special)
07-0003	Adds § 10.38.140; amends § 10.30.020 and Ch. 10.28, vehicles and traffic (10.28, 10.30, 10.38)
07-0004	Amends and restates the Atlantic Avenue planned development district (Special)
07-0005	Amends portion of Part 15 of official Use District Map (Special)

Ordinance Number	Disposition
07-0006	Adds Ch. 16.58, labor peace agreements for hotels on city-owned property (Repealed by Ord. 07-0051)
07-0007	Adds § 1.21.080, specific elections procedures (1.21)
07-0008	Amends § 10.22.080, parking regulations (10.22)
07-0009	Levying special taxes within Community Facilities District No. 2007-1 (Special)
07-0010	Downtown parking meter revenues (Special)
07-0011	Amends § 3.48.010, claims and refunds (3.48)
07-0012	Amends § 5.72.200, entertainment and similar activities (5.72)
07-0013	Approves Ord. HD-1978, approves execution and delivery of Grant Deed No. HD-7119 (Special)
07-0014	Approves Ord. HD-1979, approves execution and delivery of Grant Deed No. HD-7120 (Special)
07-0015	Amends Ord. C-6496, relating to departmental organization (Special)
07-0016	Adds Ch. 18.22, police facilities impact fee (18.22)
07-0017	Adds Ch. 18.23, fire facilities impact fee (18.23)
07-0018	Amends and restates the downtown planned development district (Special)
07-0019	Adds § 21.52.244 and Art. 3 to Ch. 20.34; amends § 21.31.020 and Tables 31-1, 31-2A and 31-2B of § 21.31.205, subdivisions, zoning (20.34, 21.31, 21.52)
07-0020	Amends portions of Part 14 of official Use District Map (Special)
07-0021	Amends and restates Long Beach Boulevard planned development district (Special)
07-0022	Amends §§ 16.04.030 and 16.04.040, piers (16.04)
07-0023	Amends § 16.16.010, parks and beaches (16.16)
07-0024	Adds Ch. 2.38, sustainable city commission (2.38)
07-0025	Adds Ch. 18.97, construction and demolition recycling program (18.97)
07-0026	Amends Ord. C-6496, relating to departmental organization (Special)
07-0027	Amends § 16.16.010, parks and beaches (16.16)
07-0028	Amends § 14.20.200, newsracks (14.20)
07-0029	Adds § 10.24.050; amends § 10.24.030, parking restrictions (10.24)
07-0030	Amends § 10.14.020, one-way streets and alleys (10.14)
07-0031	Amends § 2.52.020, public safety advisory commission (2.52)
07-0032	Adds § 5.40.065, garage sales (5.40)
07-0033	Describes program to acquire real property by eminent domain (Special)
07-0034	Adds Ch. 1.14, flag protocols (1.14)
07-0035	Amends § 10.22.080, parking regulations (10.22)
07-0036	Amends §§ 18.18.050 and 18.18.120, park and recreation facilities fee (18.18)
07-0037	Amends § 2.01.380, Long Beach Campaign Reform Act (2.01)
07-0038	Approves Resolution No. WD-1230, water rates (Special)
07-0039	Adopts 2007-2008 budget (Special)

Ordinance Number	Disposition
07-0040	Adds § 16.52.2180, historic landmarks (16.52)
07-0041	Adds Ch. 15.75, regulation of state video franchise holders (15.75)
07-0042	Amends § 10.40.010, truck routes (10.40)
07-0043	Establishes fourth street parking and business improvement area (Special)
07-0044	Amends Table 32-1 and § 21.52.213, zoning (21.32, 21.52)
07-0045	Adds Art. VI to Ch. 5.16; amends § 5.16.010, automobile businesses (5.16)
07-0046	Amends Ch. 8.61, shopping carts (8.61)
07-0047	Amends §§ 9.65.020 and 9.65.050, administrative citations and penalties (9.65)
07-0048	Temporarily limits development in certain area (Special)
07-0049	Temporarily limits development in certain area (Special)
07-0050	Temporarily limits development in certain area (Special)
07-0051	Repeals Ord. 07-0006, labor peace agreements for hotels on city-owned property (Repealer)
07-0052	Amends § 10.32.110, preferential residential parking (10.32)
07-0053	Amends § 10.32.110, preferential residential parking (10.32)
07-0054	Temporary limitation of certain construction and development activities in the Belmont shore area (Special)
07-0055	Amends portions of Parts 22, 28 and 29 of official Use District Map (Special)
07-0056	Adds §§ 1.21.025, 1.21.090 and 1.24.150; amends §§ 1.22.030 and 1.24.140, general provisions (1.21, 1.22, 1.24)
07-0057	Repeals Ord. 06-0040 (Repealer)
07-0058	Amends and restates Douglas Aircraft planned development district (Special)
07-0059	Amends § 10.38.090, miscellaneous driving rules (10.38)
07-0060	Amends § 10.22.080, parking regulations (10.22)
07-0061	Amends Ch. 18.48, fire code (18.48)
07-0062	Adds Chs. 18.69—18.71; amends §§ 18.36.010, 18.36.015, 18.36.030, 18.40.010—18.40.022, 18.99.010, Chs. 18.04—18.16, 18.24 and 18.28; repeals and replaces Ch. 18.72; repeals §§ 18.32.310, 18.36.040, 18.36.090—18.36.092 and Ch. 18.56, buildings and construction (18.04, 18.08, 18.12, 18.16, 18.24, 18.28, 18.36, 18.40, 18.69, 18.70, 18.71, 18.72, 18.99)
07-0063	Amends Ch. 3.90, development services center surcharge (3.90)
07-0064	Amends § 5.72.200, entertainment and similar activities (5.72)
07-0065	Amends Ord. C-6496 relating to departmental organization (Special)
08-0001	Amends and restates Douglas Aircraft planned development district (Special)
08-0002	Amends § 10.12.010, speed limits (10.12)
08-0003	Adds Ch. 5.81, tobacco retail permit (5.81)
08-0004	Adds Ch. 9.66, sex offender residency and loitering restrictions (9.66)

Ordinance Number	Disposition
08-0005	Amends § 2.03.070, city council (2.03)
08-0006	Repeals § 1.22.080, referenda and initiatives (1.22)
08-0007	Adds § 3.52.415; amends §§ 3.52.414 and 3.52.5217, bonds and public improvement financing (3.52)
08-0008	Temporary limitation of certain development and land use activities relating to check cashing facilities (Special)
08-0009	Amends § 14.20.200, newsracks (14.20)
08-0010	Amends §§ 18.21.020, 18.21.040 and 18.21.050, maintenance of long-term boarded and vacated buildings (18.21)
08-0011	Amends § 10.22.120, parking regulations (10.22)
08-0012	Expanding the uses of the Belmont Shore parking meter revenue fund (Special)
08-0013	Temporary limitation of certain development and land use activities relating to check cashing facilities citywide (Special)
08-0014	Adds §§ 16.08.021—16.08.026, 16.08.101, 16.08.211, 16.08.221—16.08.223, 16.08.268, 16.08.501—16.08.504; amends §§ 16.08.090, 16.08.130, 16.08.140, 16.08.261, 16.08.263, 16.08.265, 16.08.266, 16.08.340, 16.08.350, 16.08.460, 16.08.470, 16.08.551, 16.08.570, 16.08.581, 16.08.680, 16.08.900 and 16.08.970; repeals §§ 16.08.260 and 16.08.262, marinas (16.08)
08-0015	Amends § 2.84.020, contracts (2.84)
08-0016	Amends § 2.72.030, equal opportunity contract compliance program (2.72)
08-0017	Amends § 5.09.010, employment discrimination (5.09)
08-0018	Amends portions of Part 9 of official Use District Map (Special)
08-0019	Amends Ord. C-6496 relating to departmental organization (Special)
08-0020	Amends §§ 21.21.302, 21.21.402 and Table 31-2A, zoning (21.21, 21.31)
08-0021	Temporary limitation on interior alterations to create additional bedrooms in designated parking impacted area (Special)
08-0022	Amends § 2.36.020, economic development commission (2.36)
08-0023	Approving Res. WD-1245, water and sewer rates and charges (Special)
08-0024	Adopts official budget for fiscal year 2008—2009 (Special)
08-0025	Amends portions of Part 10 of official Use District Map (Special)
08-0026	Amends § 3 of Ord. C-5963, parking and business improvement area (Special)
08-0027	Amends portions of Part 9 of official Use District Map (Special)
08-0028	Amends Ords. C-7412 and C-7912, redevelopment plan for North Long Beach redevelopment project (Special)
08-0029	Amends § 21.15.2007, zoning (21.15)

This table has been replaced with the Code Comparative Table and Disposition List.

CODE COMPARATIVE TABLE AND DISPOSITION LIST

This is a chronological listing of the ordinances of Long Beach, California Code of Ordinances.

Ordinance Number	Date	Description	Section	Section this Code
ORD-08-0030	11-11-2008	Tax levy; (Belmont Shores)		Special
ORD-08-0031	11-18-2008	Amending ORD-07-0049; limiting certain construction and development		Special
ORD-08-0032	11-18-2008	Amending ORD-07-0049; limiting certain construction and development		Special
ORD-08-0033	11-18-2008	Rezone: RZ-0808-05		Special
ORD-08-0034	11-18-2008	Rezone: RZ-0807-07		Special
ORD-08-0035	12- 2-2008	Temporary limitation on truck transfer/terminal facilities		Special
ORD-08-0036	12- 2-2008	Residency restrictions for sex offenders	1 Dltd	9.66—9.66.210
			Added	9.66—9.66.120
ORD-08-0037	12- 9-2008	Naples Island newsrack pilot program	1 Added	14.20.220
ORD-08-0038	12-16-2008	Rezone: RZ-0809-10		Special
ORD-08-0039	12-16-2008	Downtown dining and entertainment district program	1	5.72.200—5.72.220
ORD-09-0001	2- 3-2009	Rezone: RZ-0810-04		Special
ORD-09-0002	2-17-2009	Smoking in public places	1	8.68.020R
			2	8.68.060
			3	8.68.110A
			4 Added	8.68.020S
			5 Added	8.68.210
ORD-09-0003	3- 3-2009	Cultural heritage commission	1	2.63.010—2.63.110
ORD-09-0004	3-10-2009	Bedroom splitting	1	21.27.065
ORD-09-0005	4- 7-2009	Small very small and local small business enterprise pilot program		Special
ORD-09-0006	4- 7-2009	Parking of commercial vehicles in residential zones	1	10.40.010B
ORD-09-0007	4- 7-2009	Palace Hotel designation as historic landmark	1 Added	16.52.2190
ORD-09-0008	4- 7-2009	American Building Maintenance Company custodial services contract		Special
ORD-09-0009	4-14-2009	Temporary limitation on smoking lounges		Special
ORD-09-0010	4-21-2009	Relocation assistance; displaced due to demolition or condominium conversion activity	1	21.60.110—21.60.340
			Added	21.60.350—21.60.390
ORD-09-0011	4-21-2009	Citizens advisory commission on disabilities	1	2.33.020
ORD-09-0012	4-21-2009	Natural gas pipeline regulations	1	15.40.130
			2 Rpld	15.40.140
			3 Rpld	15.40.150
ORD-09-0013	5- 5-2009	Green building construction	1 Added	21.25.206D.
			2 Added	21.25.407D.
			3 Added	21.25.506A.6.
			4 Added	21.25.508A.3.
			5 Added	21.45.400

Ordinance Number	Date	Description	Section	Section this Code
ORD-09-0014	6- 9-2009	Pedestrian angle of crossing	1 Rpld	10.58.030
ORD-09-0015	7- 7-2009	Local preference, local businesses	1	2.84.030
ORD-09-0016	7-14-2009	Noticing requirements for hearings	1	21.21.302
ORD-09-0017	7-14-2009	Regulation of mortgage modification consultants	1 Added	5.59.010—5.59.090
ORD-09-0018	7-21-2009	Amending and restating the Rancho Estates (PD-11)		Special
ORD-09-0019	7-21-2009	Amending portions of section 19 of the use district map		Special
ORD-09-0020	8- 4-2009	Senior citizen advisory commission	1	2.57.020
ORD-09-0021	8- 4-2009	Traffic and parking control amendments	1	10.02.040
			2, 3	10.04.010, 10.04.020
			4	10.08.010
			5—9	10.08.040—10.08.080
			10	10.08.090A.
			11	10.08.110A.
			12	10.08.120
			13	10.10.010A.
			14	10.10.020
			15, 16	10.10.040, 10.10.050
			17	10.14.010
			18	10.20.030
			19	10.22.060
			20	10.22.090
			21	10.24.075
			22	10.24.079
			23	10.24.090
			24	10.24.140B.
			25, 26	10.26.010, 10.26.020
			27	10.26.030B.
			28	10.26.040
			29	10.34.025
			30	10.58.060
			31 Added	10.18.050
			32 Added	10.24.130D.
			33 Added	10.58.015
ORD-09-0022	8- 4-2009	Animal care services bureau, code enforcement and development services administrative citations	1	1.32.010E.
			2 Dltd	6.04.010—6.04.120
			Added	6.04.010—6.04.100
			3 Dltd	6.08.010—6.08.090

Ordinance Number	Date	Description	Section	Section this Code
			Added	6.08.010—6.08.080
			4 Dltd	6.12.010—6.12.150
			Added	6.12.010—6.12.150
			5 Dltd	6.16.010—6.16.310
			Added	6.16.010—6.16.410
			6 Dltd	9.65.010—9.65.200
			Added	9.65.010—9.65.200
ORD-09-0023	8- 4-2009	Amending and restating the Downtown Shoreline (PD-6)		Special
ORD-09-0024	8- 4-2009	Amending portions of part 10 of the use district map		Special
ORD-09-0025	9- 1-2009	Smoking prohibited at bus stops	1 Added	8.68.075
ORD-09-0026	9- 1-2009	Smoking prohibited at farmers' markets	1 Added	8.68.085
ORD-09-0027	9- 8-2009	Water and sewer service rates		Special
ORD-09-0028	9-15-2009	Budget adoption		Special
ORD-09-0029	10-13-2009	Douglas Park (PD-32)		Special
ORD-09-0030	10-13-2009	Noise district map	1(exh. A)	8.80.160
ORD-09-0031	10-13-2009	Douglas Park developmental agreement	1—6	2.29.090
ORD-09-0032	10-20-2009	Preferential parking district Z	1	10.32.110
ORD-09-0033	11- 3-2009	Private refuse hauler rules and regulations	1	8.60.087A
			2	8.60.087.5
ORD-09-0034	11-17-2009	Landscaping standards	1	21.42.060
ORD-09-0035	12- 1-2009	Interim regulations on issuance of permits for billboards, supergraphic signs, etc.		Special
ORD-09-0036	12- 8-2009	Equal benefits ordinance	1 Added	Ch. 2.73, §§ 2.73.010—2.73.090
ORD-09-0037	12-15-2009	Temporary limitations on smoking lounges		Special
ORD-09-0038	12-15-2009	Smoking lounges regulations	1	8.68.020R
			2	8.68.060B
			3 Added	Ch. 5.88, §§ 5.88.010—5.88.170
ORD-09-0039	12-15-2009	Preferential parking districts O, R and U	1—3	10.32.110
ORD-10-0001	1- 5-2010	Temporary limitations on truck transfer and truck terminal facilities (IG)		Special
ORD-10-0002	1-12-2010	Parking in front of private driveways	1	10.22.025
ORD-10-0003	2-12-2010	Maximum amount of prizes—Bingo	1	5.20.120
ORD-10-0004	2- 9-2010	Beach area parking lots	1	10.30.010
			2, 3	10.30.040, 10.30.050
ORD-10-0005	3- 2-2010	Use district map amendment		Special
ORD-10-0006	3- 9-2010	Lobbyists	1 Added	2.08.010—2.08.220

Ordinance Number	Date	Description	Section	Section this Code
ORD-10-0007	3-23-2010	Medical marijuana collectives	1 Added	5.87.010—5.87.140
ORD-10-0008	4- 6-2010	Passage of Ordinance No. HD-2067		Special
ORD-10-0009	4-20-2010	Parking vehicles for sale	1 Added	10.22.080HH.
ORD-10-0010	5- 4-2010	Parking vehicles for sale	1 Added	10.22.080II.
ORD-10-0011	5- 4-2010	Preferential parking districts I and L	1, 2	10.32.110
ORD-10-0012	5- 4-2010	E. Anaheim Street Parking and Business Improvement Area		Special
ORD-10-0013	5- 4-2010	Downtown Shoreline Planned Development District		Special
ORD-10-0014	5-11-2010	Removing various fees from Code	1	1.25.020
			2	2.02.020
			3	2.87.130
			4	3.44.030
			5	5.12.170
			6	5.20.040
			7	5.24.100
			8	5.28.050A.12.
			9	5.28.071B.
			10	5.28.080D., E.
			11	6.24.020B.
			12	8.04.010
			13	8.12.020
			14	8.60.089C.
			15	8.60.091A.
			16	8.60.093B.
			17	10.50.040
			18	10.50.060
			19	14.12.040
			20	14.16.050A.4.
			21	16.08.720A.
			22	16.24.050
			23	16.36.040
			24	16.44.110
			25	16.48.050
			26	5.12.120A
ORD-10-0015	5-18-2010	Wireless telecommunications facility temporary moratorium		Special
ORD-10-0016	6-15-2010	Permits	1	5.72.130
			2 Rpld	14.04.070
ORD-10-0017	6-15-2010	Dog and cat licensing and rabies control	1 Dltd	6.08.010—6.08.080
			Added	6.08.010—6.08.090
			2—6	6.12.110—6.12.150
ORD-10-0018	6-15-2010	Established parking meter zones	1	10.28.130A.

Ordinance Number	Date	Description	Section	Section this Code
ORD-10-0019	6-22-2010	Passive park definition	1	21.15.2007
ORD-10-0020	7- 6-2010	Wireless telecommunications facility temporary moratorium		Special
ORD-10-0021	7- 6-2010	New preferential parking district	1	10.32.110
ORD-10-0022	8- 3-2010	Marinas	1	16.08.471
			2	16.08.650
ORD-10-0023	8-10-2010	Underground utilities	1	15.48.020
ORD-10-0024	8-17-2010	Downtown Shoreline Planned Development District		Special
ORD-10-0025	9- 7-2010	Overweight vehicles and cargo	1	10.41.010
			2	10.41.040
			3	10.41.060
			4	10.41.080
			5—7	10.56.020—10.56.040
			8	10.56.060
ORD-10-0026	9-14-2010	Water/sewer rates and charges	1—4	Special
ORD-10-0027	9-14-2010	Temporary moratorium for wireless facilities		Special
ORD-10-0028	9-14-2010	Officeholder accounts	1	2.01.380
			2	2.01.1020
ORD-10-0029	9-14-2010	Adopting budget		Special
ORD-10-0030	9-21-2010	Departmental organization		Special
ORD-10-0031	10-12-2010	Landscaping standards	1	21.32.220
			2	21.32.225A.2, A.4
			3	21.33.145
			4	21.33, table 33-4
			5	21.38.245
			6 Dltd	21.42.010—21.42.060
			Added	21.42.010—21.42.050
			7 Rpld	21.41.256, 21.41.257
ORD-10-0032	10-19-2010	Public walkways occupancy permits	1	14.14.010
			2	14.14.020D.
			3	14.14.045B.
			4 Added	14.14.110
ORD-10-0033	11- 2-2010	Truck terminal and truck yard facilities	1	Ch. 21.33, table 33-2
			2 Added	21.45.168
ORD-10-0034	11- 2-2010	Smoking prohibited—City parks and other recreational areas	1 Added	8.68.066
			2 Added	8.68.120C.
ORD-10-0035	11-16-2010	Amending Ch. 18 and repealing Ch. 21.62	1 Rpld	Tit. 18, chs. 18.04—18.99
			Added	Tit. 18, chs. 18.01—18.99

Ordinance Number	Date	Description	Section	Section this Code
			2 Rpld	21.62.010—21.62.240
ORD-10-0036	11-16-2010	Fishing restrictions	1 Added	16.08.460K.
ORD-10-0037	12- 7-2010	Extention of the temporary limitation on permits for billboards, supergraphic signs and conversion of existing		Special
ORD-10-0038	12-14-2010	Extention of the temporary limitation on discretionary permit issuance for installation, modification or relocation of wireless facilities in residential and institutional use zones		Special
ORD-10-0039	12-14-2010	Temporary moratorium on issuance of permits, entitlements, licenses and approvals regarding medical marijuana collectives		Special
ORD-10-0040	12-14-2010	Toledo Underground Utility District created		Special
ORD-11-0001	1- 4-2011	Foreclosure registry progam	1 Added	Ch. 18.24, §§ 18.24.010—18.24.100
ORD-11-0002	1-18-2011	Medical marijuana collectives	1 Dltd	5.87.010—5.87.140
			Added	5.87.010—5.87.140
ORD-11-0003	2- 1-2011	Tax levy; (Douglas Park)		Special
ORD-11-0004	2- 1-2011	Alcohol restrictions	1 Added	9.22.070
			2 Added	9.22.075
			3	9.22.080
ORD-11-0005	2-15-2011	Committees	1 Added	2.03.060.C
ORD-11-0006	2-15-2011	Fiscal impact statement for agenda items authorized by a councilmember	1 Added	2.03.076
ORD-11-0007	2-15-2011	Bicycle registration	1 Dltd	10.50.010—10.50.110
			Added	10.50.010—10.50.040
ORD-11-0008	4-19-2011	Smoking lounges	1	8.68.060.B
			2	5.88.060
			3 Added	5.88.065
ORD-11-0009	5-24-2011	Plastic and recyclable paper carryout bags	1 Added	Ch. 8.62, §§ 8.62.010—8.62.100
ORD-11-0010	6- 7-2011	Small, very small and local small business enterprise program established		Special
ORD-11-0011	6- 7-2011	Wireless telecommunications facilities	1(Exh. A)	Ch. 21.31, table 31-1
			2(Exh. B)	Ch. 21.32, table 32-1
			3(Exh. C)	Ch. 21.32, table 32-1A
			4(Exh. D)	Ch. 21.33, table 33-2
			5(Exh. E)	Ch. 21.34, table 34-1
			6(Exh. F)	Ch. 21.35, table 35-1
			7(Exh. G)	Ch. 21.36, table 36-1

Ordinance Number	Date	Description	Section	Section this Code
			8 Added	Ch. 21.56, §§ 21.56.010—21.56.160
			9 Rpld	21.45.115
			Rpld	21.52.210
ORD-11-0012	6-14-2011	Updating section references and administrative citations	1	3.90.020
			2	9.37.090
			3	9.65.060.D.4
			4	9.65.140.A
ORD-11-0013	7- 5-2011	Park/public park definitions	1	5.87.015.L
ORD-11-0014	8- 2-2011	Newsracks	1, 2	14.20.050, 14.20.060
			3	14.20.080
			4	14.20.210
ORD-11-0015	8- 2-2011	Political subdivisions or districts	1	1.20.010
ORD-11-0016	8- 9-2011	Voluntary alternate redevelopment program compliance		Special
ORD-11-0017	8-16-2011	PD-6 amended and restated		Special
ORD-11-0018	8-16-2011	West Long Beach Industrial Redevelopment Project incurring bond indebtedness time limit eliminated		Special
ORD-11-0019	9- 6-2011	Res. No. WD-1285, water and sewer rates approved		Special
ORD-11-0020	9- 6-2011	Adopting budget		Special
ORD-11-0021	9-13-2011	Lobbying public officials regulations	1	2.08.070
			2	2.08.100
			3	2.08.110
			4	2.08.160
ORD-11-0022	9-13-2011	Fire Code	1 Added	18.48.700
			2 Added	18.48.710
ORD-11-0023	9-13-2011	Departmental organization		Special
ORD-11-0024	10- 4-2011	Foreclosure registry program	1 Dltd	18.24.010—18.24.100
			Added	18.24.010—18.24.100
ORD-11-0025	10- 4-2011	Long Beach Unified School District established	1	1.27.010
ORD-11-0026	11-15-2011	Aggressive solicitation	1 Added	Ch. 9.35, §§ 9.35.010—9.35.050
ORD-11-0027	11-15-2011	Rezone: 1109-05		Special
ORD-11-0028	12-13-2011	Belmont Shore Parking Meter Revenue Fund uses		Special
ORD-11-0029	12-13-2011	PD-19 amended and restated		Special
ORD-11-0030	12-13-2011	Mobile food preparation vehicles	1 Added	Ch. 5.37, §§ 5.37.110—5.37.150
			2	5.66.015
			3	8.44.010.E
			4 Added	8.68.095
ORD-12-0001	1-17-2012	Restating PD-30 (Downtown Plan)		Special

Ordinance Number	Date	Description	Section		Section this Code
ORD-12-0002	1-17-2012	Restating PD-29 (Long Beach Blvd. Planned Development District)			Special
ORD-12-0003	2- 7-2012	Claims against city	1		2.83.020
ORD-12-0004	2-14-2012	Medical marijuana dispensaries	2	Added	Ch. 5.89, §§ 5.89.010—5.89.070
			3	Rpld	Ch. 5.87, §§ 5.87.010—5.87.140
ORD-12-0005	2-14-2012	Skateboarding	1		16.16.015
			2		16.16.017
ORD-12-0006	3-13-2012	Billboards	1		21.15.370
			2		21.15.2980
			3		Ch. 21.32, table 32-1
			4		Ch. 21.33, table 33-2
			5	Dltd	21.54.010—21.54.450
				Added	21.54.010—21.54.450
			6	Added	21.15.372, 21.15.374
			7		21.15.1835
ORD-12-0007	4- 3-2012	June 2012 Pilot Ballot Rotation System	1		1.21.060
ORD-12-0008	4- 3-2012	California Public Employees' Retirement System Contract			Special
ORD-12-0009	5- 8-2012	Golf Commission	1	Rpld	Ch. 2.42, §§ 2.42.010—2.42.030
ORD-12-0010	5-15-2012	Publicly accessible exterior pay telephones	1	Dltd	5.71.010—5.71.160
				Added	5.71.010—5.71.130
ORD-12-0011	6-12-2012	Home occupations	1		21.51.235
			2	Dltd	Tit. 21, Table 51-2
ORD-12-0012	9- 4-2012	District AB Preferential Parking District	1		10.32.110
ORD-12-0013(Emerg.)	9- 4-2012	Res. No. WD-1299, water and sewer rates			Special
ORD-12-0014(Emerg.)	9- 4-2012	Adopting budget			Special
ORD-12-0015	9-11-2012	Departmental organization			Special
ORD-12-0016(Emerg.)	10-23-2012	Permitting and zoning action moratorium for new payday lending, vehicle title loan or check cashing businesses			Special
ORD-12-0017(Emerg.)	11-13-2012	Temporary Construction Preferential Parking District	1	Added	Ch. 10.33, §§ 10.33.010—10.33.060
Measure N	11- 6-2012	Payment of minimum compensation and sick days to hotel workers		Added	5.48.020
ORD-12-0018(Emerg.)	12- 4-2012	Entertainment establishments and similar activities	1, 2		5.72.120, 5.72.121
			3		5.72.125

Ordinance Number	Date	Description	Section	Section this Code
			4	5.72.130
			5	21.15.110.I.
			6, 7 Added	5.72.120.5, 5.72.120.6
			8 Rpld	5.72.126
ORD-12-0019	12- 4-2012	Low income gas discount	1	15.36.120.A.
ORD-12-0020	12-11-2012	Authority of City Purchasing Agent and others to contract	1	2.84.010
ORD-12-0021 (Emerg.)	12-18-2012	Entertainment establishments and similar activities	1	5.72.120.H.3.
			2, 3	5.72.120.5, 5.72.120.6
ORD-13-0001	2-12-2013	Newsrack pilot program areas	1	14.20.200.C.
			2	14.20.220.C.
ORD-13-0002 (Emerg.)	3-19-2013	Moratorium for mortuaries, funeral homes and crematoriums		Special
ORD-13-0003	4- 9-2013	Real estate agents	1	3.80.146.J.
			2	3.80.150
ORD-13-0004	4-23-2013	Emergency shelters	1	Ch. 21.33, table 33-2
			2 Added	21.45.132
ORD-13-0005	5-14-2013	Parades and special events	1 Dltd	5.60.010—5.60.150
			Added	5.60.010—5.60.140
ORD-13-0006	5-14-2013	Filming activity	1 Dltd	5.61.010—5.61.090
			Added	5.61.010—5.61.095.5
ORD-13-0007	5-21-2013	Neighborhood commercial automobile-oriented		Special
ORD-13-0008	5-21-2013	Public library; institutional use	1	Ch. 21.32, table 32-1
ORD-13-0009	7-16-2013	Preferential parking district "AB"	1	10.32.110
ORD-13-0010	7-16-2013	Traffic direction	1	10.64.010
ORD-13-0011	8-13-2013	Operation of ice cream trucks	1	5.51.060
			2 Added	5.51.065
ORD-13-0012	8-13-2013	Alcohol nuisance abatement	1 Added	Ch. 21.57, §§ 21.57.010—21.57.090
ORD-13-0013 (Emerg.)	9-10-2013	Water/sewer service charges		Special
ORD-13-0014	9- 3-2013	Various Title 21 amendments relating to signs	1	21.15.2510
			2	21.15.2520
			3	21.15.2550
			4, 5	21.15.2570, 21.15.2571
			6	21.15.2573
			7	21.15.2577
			8	21.15.2580
			9	21.15.2600

Ordinance Number	Date	Description	Section	Section this Code
			10	21.15.2620
			11	21.15.2630
			12	21.15.2700
			13	21.15.2710
			14	21.15.2720
			15	21.15.2730
			16	21.15.2740
			17	21.15.2750
			18	21.15.2980
			19 Dltd	Ch. 21.44, §§ 21.44.010—21.44.400
			Added	Ch. 21.44, §§ 21.44.010—21.44.900
			20	21.52.229
			21 Added	21.15.2570.5
			22 Added	21.15.2575
			23 Added	21.15.2595
			24 Added	21.15.2665
			25 Added	21.15.2721
			26 Added	21.15.2723
			27 Added	21.15.2743
			28 Added	21.15.2745
			29 Added	21.15.2755
			30 Rpld	21.15.2540
			Rpld	21.15.2560
			Rpld	21.15.2640
			Rpld	21.15.2670—21.15.2690
			Rpld	21.15.2725
ORD-13-0015 (Emerg.)	9-10-2013	Adopting the fiscal year 2013-2014 budget		Special
ORD-13-0016 (Emerg.)	10- 1-2013	Moratorium—Establishment of bars/nightclubs with type 48 ABC licenses and related permits		Special
ORD-13-0017	10- 1-2013	Smoking lounge permits	1	8.68.060.B
			2	5.88.065
ORD-13-0018	10- 1-2013	Check cashing and other financial uses	1	21.15.475
			2	21.52.212
			3(exh. A)	Ch. 21.32, table 32-1
			4(exh. B)	Ch. 21.32, table 32-1A
			5(exh. C)	Ch. 21.33, table 33-2
			8 Added	21.15.335
			9 Added	21.15.442
			10 Added	21.15.562

Ordinance Number	Date	Description	Section	Section this Code
			11 Added	21.15.635
			12, 13 Added	21.15.1792, 21.15.1793
			14 Added	21.15.1795
			15, 16 Added	21.15.2008, 21.15.2209
			17 Added	21.15.2225
			18 Added	21.15.2401
			19 Added	21.45.116
ORD-13-0019	10- 8-2013	Speed limits	1	10.12.010.A.54
			2	10.12.010.A.69
			3	10.12.020.A.14
			4	10.12.020.A.22
			5, 6 Added	10.12.020.A.68, A.69
ORD-13-0020	10- 8-2013	Rezone: ZC: 1305-04		Special
ORD-13-0021	10-15-2013	Modifying boundaries of Fourth Street parking and business improvement area		Special
ORD-13-0022	10-22-2013	Cemeteries, mortuaries and crematoriums	1	21.52.211
			2	Ch. 21.32, table 32-1
			3	Ch. 21.33, table 33-2
			4	Ch. 21.34, table 34-1
			5 Added	21.15.1797
ORD-13-0023	11- 5-2013	Departmental organization		Special
ORD-13-0024	11-12-2013	Building Standards Code	1(exh. A) Dltd	Tit. 21, Chs. 18.01—18.99
			Added	Tit. 21, Chs. 18.01—18.99
			2 Rpld	Ch. 21.65, §§ 21.65.010—21.65.210
ORD-13-0025	12- 3-2013	Fortunetelling	1	5.38.010
			2(exh. A)	Ch. 21.32, table 32-1
			3(exh. B)	Ch. 21.32, table 32-1A
			7 Rpld	5.38.020—5.38.140
ORD-13-0026	12- 3-2013	Secondhand dealers	1	5.64.010.C
			2	21.15.2008
			3 Rpld	21.15.2401
ORD-13-0027	12- 3-2013	Cottage food operations	1	21.51.235.C.10
			2 Added	21.51.235.A.4
ORD-13-0028	12-10-2013	Skateboards	1	10.54.040
ORD-13-0029	12-10-2013	Conferring upon and delegating to the Board of Harbor Commissioners the authority to enforce statutes and ordinances, to arrest and to prepare, issue and deliver written notices to appear		Special
ORD-13-0030	12-17-2013	Long Beach Airport and Convention Center labor peace agreement	1 Added	Ch. 16.58, §§ 16.58.010—16.58.060
ORD-13-0031	12-17-2013	Long Beach Airport and Convention Center worker retention	1 Added	Ch. 16.59, §§ 16.59.010—16.59.080
ORD-14-0001	1-14-2014	Social host regulations	1 Added	Ch. 9.61, §§ 9.61.010—9.61.060
ORD-14-0002	2-11-2014	Payment of living wage to workers at the Long Beach Airport and Convention Center	1 Added	Ch. 16.60, §§ 16.60.010—16.60.100

Ordinance Number	Date	Description	Section	Section this Code
ORD-14-0003	3- 4-2014	Electronic cigarettes and similar devices	1 Dltd	5.81.005—5.81.100
			Added	5.81.005—5.81.110
			2 Dltd	8.68.010—8.68.210
			Added	8.68.010—8.68.220
ORD-14-0004	3-11-2014	Adaptive reuse	1	21.25.502
			2 Added	21.15.064.5
			3 Added	21.45.500
Measure A	4- 8-2014	Marijuana Business license general tax	1 Added	3.80.261
ORD-14-0005 (Emerg.)	5-20-2014	Hotel and motel rental inspections	1 Added	5.48.010.F
ORD-14-0006	6-17-2014	Billboards	1 Dltd	21.54.010—21.54.450
			Added	21.54.010—21.54.450
ORD-14-0007	7- 8-2014	One-way streets	1 Added	10.14.020.A.116, A.117
ORD-14-0008	7-22-2014	Real estate purchase contracts	1 Added	2.84.060
ORD-14-0009	8- 5-2014	Narcotics related nuisance abatement	1 Dltd	9.16.010—9.16.040
			Added	9.16.010—9.16.050
ORD-14-0010	8- 5-2014	Public posting prohibited	1	5.46.060
ORD-14-0011 (Emerg.)	8-12-2014	Six-month extension on the issuance of entertainment permits/business license for Type 48 ABC License or related permit		Special
ORD-14-0012 (Emerg.)	9- 2-2014	Water/sewer service charges		Special
ORD-14-0013 (Emerg.)	9- 2-2014	Adopting the fiscal year 2014-2015 budget		Special
ORD-14-0014	9- 9-2014	Departmental organization		Special
ORD-14-0015	10-14-2014	Technology and Innovation Commission	1 Added	Ch. 2.50, §§ 2.50.010—2.50.080
ORD-14-0016	10-14-2014	Council meeting order of business	1	2.03.040
ORD-14-0017	11-11-2014	Speed limit	1	10.12.010.A.58
ORD-14-0018	11-11-2014	Modifying assessments to be levied with Bixby Knolls Parking and Business Improvement Area		Special
ORD-14-0019	11-18-2014	Board of Examiners, Appeals and Condemnation and Disabled Access Appeals Board	1	18.10.020
			2 Rpld	18.10.030
ORD-14-0020	11-18-2014	Campaign Reform Act and Campaign Disclosure Statements	1	2.01.210.B
			2	2.01.340.B
			3	2.01.370
			4	2.01.390
			5	2.01.420
			6	2.01.810
			7	2.01.1010
			8	2.01.1030
			9	2.01.1210
			10	2.02.010
			11 Added	2.01.395
			12 Rpld	2.01.330

Ordinance Number	Date	Description	Section		Section this Code
				Rpld	2.01.350
				Rpld	2.01.610, 2.01.620
				Rpld	2.01.730
ORD-14-0021	12- 9-2014	Economic Development Commission	1	Dltd	2.36.010—2.36.060
				Added	2.36.010—2.36.040
ORD-15-0001	1-13-2015	Speed limits	1		10.12.010.A.63
ORD-15-0002	1-13-2015	Downtown Dining and Entertainment District	1		5.72.200
			2	Added	21.15.1855
ORD-15-0003	1-13-2015	Excavations, street improvements and temporary occupation of rights-of-way	1		14.08.010.H
			2, 3		14.08.020, 14.08.030
			4		14.08.050
			5		14.08.170
			6	Added	14.08.330, 14.08.340
ORD-15-0004	2- 3-2015	Officeholder accounts	1		2.01.380
			2		2.01.1020
ORD-15-0005	2- 3-2015	City Attorney settlement authority	1		3.48.010
ORD-15-0006	3- 3-2015	One-way streets and alleys	1, 2		10.14.020
ORD-15-0007	3-17-2015	Small business recruitment, retention and growth pilot program			Special
ORD-15-0008	3-17-2015	Unaltered dogs and cats prohibitions/animal shop sales	1		6.16.085
			2	Added	6.16.062
ORD-15-0009	3-24-2015	Dog exercise area on beach	1		6.16.310
ORD-15-0010	4- 7-2015	Alcoholic beverage manufacturing and accessory tasting rooms	1		Ch. 21.32, table 32-1
			2		Ch. 21.33, table 33-2
			3		Ch. 21.41, table 41-1C
			4	Added	21.15.055
			5	Added	21.15.135
			6	Added	21.45.114
ORD-15-0011 (Emerg.)	4-21-2015	Moratorium on provisions that exempt certain alcohol related sales uses from the requirement to obtain a CUP before commencing operations			Special
ORD-15-0012	5-19-2015	Employess assistance program contract			Special
ORD-15-0013	6- 9-2015	Change in establishing an advisory body			Special
ORD-15-0014	6- 9-2015	Taxi Regulation Modernization Pilot Program established	1	Added	5.80.400
ORD-15-0015	6-16-2015	Transitional and supportive housing	1		21.15.1010
			2	Added	21.15.2667
			3, 4	Added	21.15.2985, 21.15.2987
			5	Added	21.15.3095
ORD-15-0016	6-23-2015	Proactive Rental Housing Inspection Program	1	Added	Ch. 18.30, §§ 18.30.010—18.30.190
ORD-15-0017	7-14-2015	Livestock and other animals	1		6.16.010
			2	Dltd	6.20.010—6.20.170

Ordinance Number	Date	Description	Section	Section this Code
			Added	6.20.010—6.20.220
			3	6.24.010
ORD-15-0018	7-14-2015	Golden Shore Development Agreement		Special
ORD-15-0019	7-14-2015	Removal of CUP exemptions for alcoholic beverage sales	1, 2	Ch. 21.32, table 32-1
			3, 4	Ch. 21.32, table 32-1A
ORD-15-0020	8-11-2015	Board of Health and Human Services	1 Dltd	2.24.010—2.24.080
			Added	2.24.010—2.24.260
ORD-15-0021	8-11-2015	Meter tests	1	15.40.100.A
ORD-15-0022	8-18-2015	Expedited permitting process and fees for small rooftop solar energy systems	1	18.06.010.A
			2	18.06.020.A
			3 Added	Ch. 18.77 §§ 18.77.010—18.77.050
ORD-15-0023 (Emerg.)	9- 8-2015	Water/sewer service charges		Special
ORD-15-0024 (Emerg.)	9- 8-2015	Temporary limitation of certain construction and development activities in R-1-L Zone in Los Cerritos/Virginia Country Club areas		Special
ORD-15-0025 (Emerg.)	9-15-2015	Adopting the fiscal year 2015-2016 budget		Special
ORD-15-0026	9-22-2015	Departmental organization		Special
ORD-15-0027	10-13-2015	Unlawful weapons or ammunition on real property	1 Added	Ch. 9.17, §§ 9.17.010—9.17.050
ORD-15-0028	10-13-2015	Pilot program establishing left curb parking in designated areas	1 Added	10.22.184
ORD-15-0029	10-20-2015	Stormwater and runoff pollution control	1 Added	Ch. 8.96, §§ 8.96.010—8.96.240
ORD-15-0030	10-20-2015	Parking meter zones	1	10.28.130.A
ORD-15-0031	11-10-2015	Testing and operation, fire protection	1 Added	18.48.495
ORD-15-0032	11-17-2015	Rezone: 1406-12A		Special
ORD-15-0033	11-17-2015	Rezone: 1406-12A		Special
ORD-15-0034	11-17-2015	Development agreement; Riverwalk Residential Development Project and Oregon Park Construction		Special
ORD-15-0035	11-17-2015	Credit due against the transportation improvement fee; Riverwalk Residential Development Project		Special
ORD-15-0036	11-17-2015	Credit due against the park and recreation facilities fee; Riverwalk Residential Development Project		Special
ORD-15-0037	11-17-2015	Planned unit developments	1	Ch. 21.30, table 30-1
			2(Att. A)	Ch. 21.31, table 31-1
			3 Added	21.31.020.T
			4 Added	21.31.300—21.31.360
ORD-15-0038	12- 1-2015	Cultural Heritage Commission	1 Dltd	2.63.010—2.63.110
			Added	2.63.010—2.63.130
			2	9.65.060
ORD-15-0039	12- 1-2015	Pine/Obispo Avenue speed limit	1	10.12.010.A.40
			2	10.12.020.A.29

Ordinance Number	Date	Description	Section		Section this Code
ORD-15-0040	12-15-2015	Preferential Parking District AD	1		10.32.110
ORD-15-0041	12-15-2015	Preferential Parking District AC	1		10.32.110
ORD-15-0042	12-22-2015	Credit for transportation improvements			Special
ORD-16-0001	1-19-2016	Procurement during a proclaimed emergency or disaster	1	Added	Ch. 2.85 §§ 2.85.010—2.85.050
ORD-16-0002	2- 2-2016	Canvass of returns	1		1.21.010
			2		1.21.050
ORD-16-0003	2- 9-2016	Veterans Affairs Commission	1	Added	Ch. 2.60 §§ 2.60.010—2.60.040
ORD-16-0004	3- 8-2016	Electrically motorized boards	1	Added	Ch. 10.51 §§ 10.51.010—10.51.060
ORD-16-0005	3-22-2016	Alamitos Neighborhood Library	1	Added	16.52.2200
ORD-16-0006	4-19-2016	Custodial, maintenance and security services contract; Plenary Edgemoor Civic Partners, LLC			Special
ORD-16-0007	5-17-2016	Billboards	1		21.54.120.B.2
			2		21.54.130.A
			3		Ch. 21.54, table 54-1
ORD-16-0008	5-24-2016	Procurement and management of job order contracts	1	Added	2.84.070—2.84.160
Measure A	6- 7-2016	Transactions and use tax	Att. 1	Added	Ch. 3.62 §§ 3.62.010—3.62.130
Measure B	6- 7-2016	Budget stabilization (rainy day) fund	1	Added	Ch. 3.94 §§ 3.94.010—3.94.030
ORD-16-0009	6-14-2016	Midtown Specific Plan	1		Ch. 21.21, table 21-1
			2	Dltd	21.25.701—21.25.708
				Added	21.25.701—21.25.708
			3	Dltd	21.37.010—21.37.070
				Added	21.37.010—21.37.070
				Added	21.37.200, 21.37.210
				Added	21.37.330
ORD-16-0010	6-14-2016	Amending portions 9, 10, 15 and 16 of the land use district map			Special
ORD-16-0011	6-21-2016	Preferential Parking District U	1		10.32.110
ORD-16-0012	6-21-2016	Historic landmark designation; 260 East San Antonio Dr.	1	Added	16.52.2210
ORD-16-0013	6-21-2016	Historic landmark designation; 6509 Gundry Ave.	1	Added	16.52.2220
ORD-16-0014	6-21-2016	Residency restrictions for sex offenders	1	Dltd	9.66.010—9.66.120
				Added	9.66.010—9.66.110
ORD-16-0015	6-21-2016	Transitional and supportive housing	1(Exh. A)		Ch. 21.31, table 31-1
ORD-16-0016	7-12-2016	Preferential Parking District R	1		10.32.110
ORD-16-0017	8- 2-2016	Marinas	1		16.08.266
			2	Rpld	16.08.910
ORD-16-0018 (Emerg.)	8-23-2016	Extension of the temporary limitation of certain construction and development activities in the R-1-L zone in the Los Cerritos and Virginia Country Club areas			Special
ORD-16-0019	8-23-2016	Subsurface installations—Depth	1		14.08.170

Ordinance Number	Date	Description	Section	Section this Code
ORD-16-0020 (Emerg.)	9-13-2016	Water and sewer service rates and charges		Special
ORD-16-0021 (Emerg.)	9-13-2016	Adopting the fiscal year 2016-2017 budget		Special
ORD-16-0022	9-20-2016	Departmental organization		Special
ORD-16-0023	10-11-2016	Sale of property; Broadway and Golden Avenue		Special
Measure MA	11- 8-2016	Business license tax on marijuana businesses	1 Rpld	3.80.260
			2	3.80.261
Measure MM	11- 8-2016	Business license tax on marijuana businesses	1 Rpld	3.80.260
			2	3.80.261
			3 Rpld	5.89.010—5.89.070
			4 Added	Ch. 5.90 §§ 5.90.010—5.90.280
ORD-16-0024	11-15-2016	Primary and special elections—Time limit to challenge ballot material	1	1.24.150.B
ORD-16-0025	11-22-2016	Alcoholic beverage manufacturing and accessory tasting rooms	1	Ch. 21.41, table 41-1C
			2	21.45.114 §§ 2, 5, 8
ORD-16-0026	11-22-2016	Amending and reinstating Title 18, Building Standards Code	1(Exh. A) Dltd	18.01.010—18.99.010
			Added	18.01.010—18.99.010
ORD-16-0027	11-22-2016	Amending and reinstating Title 12, Long Beach Oil Code	1(Exh. A) Dltd	12.04.010—12.64.040
			Added	12.04.010—12.64.040
ORD-16-0028	11-22-2016	Various Code amendments; water, sewer surcharge, wall, fence or hedge maintenance, parking provisions, landscape standards, etc.	1	3.90.020.A
			2	8.76.010.N
			3	8.76.210.E
			4	10.46.100
			5	21.15.330
			6, 7	21.15.740, 21.15.750
			8	21.15.2250
			9	21.21.406.A
			10	21.31.220.B.4
			11	21.42.030
				21.42.035.A.1
				21.42.050.C.1, 2
			12 Added	21.15.025
			13 Added	21.41.232
ORD-16-0029	12- 6-2016	Historical landmark designation	1	16.52.2210
ORD-16-0030	12- 6-2016	Historical landmark designation	1	16.52.2220
ORD-16-0031	12-13-2016	Rezone		Special
ORD-16-0032	12-20-2016	Belmont Shore Parking and Business Improvement Area Advisory Commission terms and membership		Special

Ordinance Number	Date	Description	Section	Section this Code
ORD-17-0001	2-14-2017	Redevelopment agency	1 Rpld	Ch. 2.66 §§ 2.66.010—2.66.080
ORD-17-0002	2-21-2017	Rezone		Special
ORD-17-0003	3-14-2017	Rezone		Special
ORD-17-0004	3-14-2017	Willow Street Center PD-27 boundary map adopted		Special
ORD-17-0005 (Emerg.)	4- 4-2017	Unattended donation/recycling collection boxes or bins—Temporary limitation		Special
ORD-17-0006	4- 4-2017	R-1-L development and design standards	1(Att. A)	Ch. 21.31 table 31-2A
			2 Added	21.31.255.F
ORD-17-0007	4-18-2017	Officeholder expense fund contributions and transfer of funds	1	2.01.380
			2 Rpld	2.01.390
ORD-17-0008	5- 2-2017	Wireless telecommunications facilities	1	21.56.010—21.56.160
ORD-17-0009	5-16-2017	Rezone		Special
ORD-17-0010	5-16-2017	Water and sewer service rates and charges		Special
ORD-17-0011	7-11-2017	Local enforcement and penalties for illegal marijuana businesses	1 Added	5.90.290
ORD-17-0012	8-15-2017	Parking of oversized vehicles	1	10.24.005
			2—5	10.24.077—10.24.080
			6 Added	10.24.081
			7 Rpld	10.24.076
ORD-17-0013	8-15-2017	Historic landmark designated: 501 East Broadway	1 Added	16.52.2230
ORD-17-0014	8-15-2017	Historic landmark designated: 909-915 Elm Ave.	1 Added	16.52.2240
ORD-17-0015	8-15-2017	Historic landmark designated: 287 Granada Ave.	1 Added	16.52.2250
ORD-17-0016	8-15-2017	Historic landmark designated: Junipero Ave.	1 Added	16.52.2260
ORD-17-0017	8-15-2017	Historic landmark designated: 362 Junipero Ave.	1 Added	16.52.2270
ORD-17-0018 (Emerg.)	8-22-2017	Preferential Parking District U	1	10.32.110
ORD-17-0019 (Emerg.)	9- 5-2017	Water and sewer service rates and charges		Special
ORD-17-0020 (Emerg.)	9- 5-2017	Adopting the fiscal year 2017-2018 budget		Special
ORD-17-0021	9-12-2017	Departmental organization		Special
ORD-17-0022	10- 3-2017	Establishment of the Southeast Area Specific Plan (SP-2)	1	21.37.020
			2	21.37.210
ORD-17-0023	10- 3-2017	Rezone		Special
ORD-17-0024	10-10-2017	Urban Agriculture Incentive Zone Program	1(Exh. A)	Ch. 21.31, table 31-1
			2(Exh. B)	Ch. 21.32, table 32-1
			3(Exh. C)	Ch. 21.32, table 32-1A
			4(Exh. D)	Ch. 21.33, table 33-2
			5	21.52.260
			6 Added	Ch. 8.77 §§ 8.77.010—8.77.080

Ordinance Number	Date	Description	Section	Section this Code
			7 Added	21.15.3155
ORD-17-0025	10-10-2017	Vacant lots	1 Added	Ch. 18.29 §§ 18.29.060—18.29.100
ORD-17-0026	10-10-2017	Medical and Adult-Use Cannabis Regulation and Safety Act	1 Added	5.90.300
ORD-17-0027	11-14-2017	Default beverages offered with children's meals	1 Added	Ch. 8.17 §§ 8.17.010—8.17.070
ORD-17-0028 (Emerg.)	12- 5-2017	Water and sewer service rates and charges		Special
ORD-17-0029	12-12-2017	Election procedures	1	1.21.010
			2	1.21.040.B
			3	1.21.050
ORD-17-0030 (Emerg.)	12-19-2017	Temporary ban on all non-medical commercial cannabis businesses and related activities		Special
ORD-17-0031	12-19-2017	Accessory dwelling units	1	21.15.050
			2	21.15.063
			3	21.15.930
			4	21.15.1720
			5	21.15.1770
			6	21.15.2400
			7	21.15.2410
			8	21.31.360.B
			9(Exh. A)	Ch. 21.31, table 31-1
			10	21.51.110.A
			11	21.51.275
			12 Added	21.15.045
			13 Added	21.15.447
			14 Added	21.15.915
			15 Added	21.15.935
			16 Added	21.15.2165
			17 Added	21.25.903.C.5
			18 Added	21.41.233.A.3
			19 Added	21.41.233.C
			20 Added	21.51.276
ORD-18-0001	1-23-2018	Southeast Area Development and Improvement Plan (SEADIP) (PD-1)		Special
ORD-18-0002	1-23-2018	Long Beach Oil Code	1 Dltd	12.08.100
			Added	12.08.100.1
			Added	12.08.257
ORD-18-0003 (Emerg.)	3-13-2018	Unattended Donation Boxes	1(Exh. A)	Ch. 21.32, table 32-1
			2(Exh. B)	Ch. 21.34, table 34-1
			3 Added	21.15.3153
			4 Added	21.51.294
ORD-18-0004	3-13-2018	Public walkways occupancy permits for gym or fitness uses - pilot project	1 Added	14.14.200
ORD-18-0005	3-20-2018	Historical landmark—Fly DC Jets sign	1 Added	16.52.2280

Ordinance Number	Date	Description	Section	Section this Code
ORD-18-0006	3-20-2018	Historical landmark—VIP Records sign	1 Added	16.52.2290
ORD-18-0007	4- 3-2018	Rezone		Special
ORD-18-0008	4- 3-2018	Rezone		Special
ORD-18-0009	4-17-2018	PD-32 amendment		Special
ORD-18-0010	5- 1-2018	Polystyrene food packaging	1 Added	Ch. 8.63 §§ 8.63.010—8.63.120
ORD-18-0011	5- 1-2018	Riverwalk development agreement amendment		Special
ORD-18-0012	5- 1-2018	Wireless telecommunications facilities	1 Dltd	21.56.010—21.56.160
			Added	21.56.010—21.56.150
			2 Added	Ch. 15.34 §§ 15.34.010—15.34.050
ORD-18-0013	5- 8-2018	Tattoo parlors	1	21.15.2990
			2(Exh. A)	Ch. 21.32, table 32-1
			3(Exh. B)	Ch. 21.32, table 32-1A
			4	21.52.273
			5 Added	21.45.166
ORD-18-0014	5- 8-2018	City holidays	1	10.02.040
			2	10.28.050.A
ORD-18-0015	7-10-2018	Adult-use cannabis	1(Exh. A)	Ch. 21.31, table 31-1
			2(Exh. B)	Ch. 21.32, table 32-1
			3(Exh. C)	Ch. 21.33, table 33-2
			4(Exh. D)	Ch. 21.34, table 34-1
			5(Exh. E)	Ch. 21.35, table 35-1
			6(Exh. F) Added	Ch. 5.92 §§ 5.92.010—5.92.1550
			7 Added	21.15.113
			8 Added	21.15.441.1—21.15.441.4
ORD-18-0016	7-10-2018	Recruitment and training of public safety dispatchers	1 Added	Ch. 2.17 § 2.17.010
ORD-18-0017	7-10-2018	Rezone		Special
ORD-18-0018	7-10-2018	Massage establishments	1 Dltd	5.58.010—5.58.200
			Added	5.58.010—5.58.190
			2	21.15.110
			3	21.15.1725
			4	21.32.035
			5	Ch. 21.32, table 32-1
			6	21.33.050
			7	21.34.030
			8	21.35.030
			9 Added	21.52.030
			10 Rpld	21.51.243
ORD-18-0019	7-17-2018	Commission on Youth and Families established	1 Added	Ch. 2.56 §§ 2.56.010—2.56.050
ORD-18-0020	8- 7-2018	Public street right-of-way, work within and obstruction of	1 Added	14.04.015

Ordinance Number	Date	Description	Section	Section this Code
ORD-18-0021	8-14-2018	Reauthorization of video franchise fees	1 Added	15.75.060
ORD-18-0022 (Emerg.)	9- 4-2018	Water and sewer service rates and charges		Special
ORD-18-0023 (Emerg.)	9- 4-2018	Adopting the fiscal year 2018-2019 budget		Special
ORD-18-0024	9-11-2018	Departmental organization		Special
ORD-18-0025	10- 2-2018	Conditional use permits	1 Rpld	21.52.204
			2 Rpld	21.52.281
			3	21.15.1560
			4	21.15.2310
			5	21.15.2420
			6	21.15.3000
			7	21.15.3015
			8	21.21.302.B.4
			9(Exh. A)	Ch. 21, table 31-1
			10(Exh. B)	Ch. 21, table 32-1
			11	21.52.249
			12 Added	21.15.1576
			13 Added	21.15.1859
			14 Added	21.25.905
			15 Added	21.52.200.1
			16 Added	21.52.240.5
			17 Added	21.52.270.1
ORD-18-0026	10- 9-2018	Southeast Area Development Plan and Improvement Plan		Special
ORD-18-0027	10- 9-2018	Prohibition on repairs and sales of bicycles and bicycle parts on public property	1 Added	Ch. 10.49 §§ 10.49.010—10.49.030
Measure WW	11- 6-2018	Hotel working conditions	1 Added	Ch. 5.49 §§ 5.49.010—5.49.120
ORD-18-0028	11-13-2018	Hotel worker safety precautions	1 Added	Ch. 5.54 §§ 5.54.010—5.54.060
ORD-18-0029	12-11-2018	Parking meter zones	1	10.28.130.A
ORD-18-0030	12-11-2018	Assembly uses	1	21.15.590
			2	21.15.1470
			3	21.15.2005
			4	21.15.2810
			5	21.25.502.A.3
			6(Exh. A)	Ch. 21.32, table 32-1
			7	21.32.020
			8 Added	21.15.245
			9 Added	21.15.595
			10 Added	21.15.707
			11 Added	21.15.1054
			12 Added	21.15.2195
			13 Added	21.15.2273
			14 Added	21.52.219.8

Ordinance Number	Date	Description	Section	Section this Code
			15	21.52.232
			16 Rpld	21.15.510
			Rpld	21.52.213
ORD-18-0031	12-18-2018	Sidewalk dining and parklets within the city's right-of-way	1	14.14.010—14.14.045
			Dltd	14.14.050
				14.14.055—14.14.200
			2 Added	Ch. 14.15 §§ 14.15.010—14.15.110
ORD-18-0032	12-18-2018	Smoking in public places	1	8.68.020
			2	8.68.060
			3	8.68.065
			4	8.68.075
			5	8.68.090
			6	8.68.110.A
ORD-19-0001	1- 8-2019	Election dates	3 Added	Ch. 1.15 §§ 1.15.010—1.15.070
			4 Rpld	2.01.210.B
			Rpld	2.01.1010
ORD-19-0002	2-12-2019	Southern California Gas Company Franchise		Special
ORD-19-0003	3-12-2019	High-Rise Overlay District yard requirements	1	21.39.230, table 39-1
ORD-19-0004	3-12-2019	Rezone		Special
ORD-19-0005	4-16-2019	Hotel worker safety precautions	1	5.54.020.F
			2	5.54.030.B
ORD-19-0006	4-23-2019	Alcoholic beverage manufacturing	1	Ch. 21.41, table 41-1C
ORD-19-0007	4-23-2019	Various Zoning Code amendments	1	21.15.750
			2	21.31.220.B.4
			3	21.41.232
			4	21.42.050.B.2
			5, 6	21.42.050.C.1, C.2
			7 Added	21.27.055
			8 Added	21.42.030.A.12
ORD-19-0008	4-23-2019	Accessory dwelling units	1	21.25.903.C
			2	21.25.904.B
			3	21.51.276
			4 Rpld	21.51.275
ORD-19-0009	5- 7-2019	Modifying annual benefit assessments of ORD-10-0012		Special
ORD-19-0010 (Emerg.)	5-21-2019	New drive-through lanes interim regulations		Special
ORD-19-0011	5-14-2019	Various Zoning Code amendments	1	21.15.3060
			2	21.21.501
			3	21.21.504
			4	21.25.101
			5	21.31.225
			6	21.31.235.C

Ordinance Number	Date	Description	Section	Section this Code
			7	21.31.255
			8	21.31.265
			9	21.41.253
			10	21.52.263
			11 Added	21.32.275
ORD-19-0012	5-14-2019	Council delegated additional powers and duties to the Board of Harbor Commissioners		Special
ORD-19-0013	5-21-2019	Shared Micromobility Device Program	1 Added	Ch. 10.71 §§ 10.71.010—10.71.110
ORD-19-0014	6-11-2019	Tenant relocation assistance	1 Added	Ch. 8.97 §§ 8.97.010—8.97.070
ORD-19-0015	6-11-2019	Rezone		Special
ORD-19-0016	7-23-2019	Drive-through facilities	1	21.15.870
			2—4	Ch. 21.32, table 32-1
			5—7	Ch. 21.33, table 33-2
			8	21.45.130
			9 Added	21.15.875
ORD-19-0017	8-20-2019	Rezone		Special
ORD-19-0018 (Emerg.)	9- 3-2019	Water and sewer service charges		Special
ORD-19-0019	9- 3-2019	One-way streets and alleys	1, 2 Added	10.14.020.A.118, A.119
ORD-19-0020 (Emerg.)	9- 3-2019	Fiscal year 2019-2020 budget adopted		Special
ORD-19-0021	9-10-2019	City Council meeting	1	2.03.040
			2	2.03.060
ORD-19-0022	9-10-2019	Departmental organization		Special
ORD-19-0023	10-15-2019	Grant Neighborhood Historic Landmark District	1 Added	16.52.2300
ORD-19-0024	10-15-2019	Ferguson House Historic Landmark	1 Added	16.52.2310
ORD-19-0025	10-15-2019	Alexander House Historic Landmark	1 Added	16.52.2320
ORD-19-0026	10-15-2019	Bowyer Residence Historic Landmark	1 Added	16.52.2340
ORD-19-0027	10-15-2019	Petersen House Historic Landmark	1 Added	16.52.2330
ORD-19-0028	11- 5-2019	Various Zoning Code regulations	1	21.15.660
			2	21.15.1070
			3	21.15.1090
			4	21.15.1620
			5	21.21.402
			6	21.25.806
			7	21.27.130
			8	21.31.215.G
			9	21.31.225
			10	21.31.235.C
			11	Ch. 21.31, table 31-7
			12	21.32.220
			13—15	Ch. 21.32, table 32-1
			16	Ch. 21.32, table 32-2 fn

Ordinance Number	Date	Description	Section	Section this Code
			17	Ch. 21.32, table 32-2A fn
			18	21.33.140
			19	21.34.225
			20 Added	Ch. 21.34, table 34-2 fn
			21	Ch. 21.41, table 41-1C
			22	Ch. 21.51, table 51.276-1
			23	21.42.040.F
			24	21.43.020
			25	Ch. 21.41, table 43-1
			26	21.44.140.D.3
			27	21.44.600.I
			28 Added	21.15.165
			29—31 Added	21.15.195—21.15.197
			32 Added	21.15.3151
			33 Added	21.33.130.E
			34 Added	21.45.115.5
			35, 36 Added	21.45.133, 21.45.135
			37 Added	21.52.280
			38 Rpld	21.31.260
			Rpld	21.52.286
ORD-19-0029 (Emerg.)	11-12-2019	Temporarily prohibit no-fault notices and evictions through December 31, 2019, for residential real property built prior to January 1, 2005	1 Added	Ch. 8.98 §§ 8.98.010—8.98.050
ORD-19-0030	11-12-2019	Board of Harbor Commissioners agreement and master agreement approved		Special
ORD-19-0031	11-19-2019	Long Beach Building Standards Code amended and restated in its entirety	1(Exh. A)	18.01.010—18.01.060
				18.02.010, 18.02.020
				18.03.010—18.03.060
				18.04.010—18.04.070
				18.05.010—18.05.070
				18.06.010—18.06.200
				18.07.010—18.07.080
				18.08.010—18.08.060
				18.09.010—18.09.080
				18.10.010—18.10.050
			Added	Ch. 18.11 §§ 18.11.010—18.11.070
			Added	Ch. 18.15 §§ 18.15.010—18.15.170
			Added	Ch. 18.16 §§ 18.16.010—18.16.170
				18.17.010—18.17.190
				18.18.010—18.18.180
				18.20.010—18.20.300
				18.21.010—18.21.050

Ordinance Number	Date	Description	Section	Section this Code
			Dltd	Ch. 18.22 §§ 18.22.010—18.22.170
			Dltd	Ch. 18.23 §§ 18.23.010—18.23.170
				18.24.010—18.24.100
				18.25.010—18.25.210
				18.29.060—18.29.100
				18.30.010—18.30.190
			Dltd	18.40.010—18.40.570
			Added	18.40.010—18.40.810
			Dltd	18.41.010—18.41.250
			Added	18.41.010—18.41.270
			Dltd	18.42.010, 18.42.020
			Added	18.42.010
			Dltd	18.43.010, 18.43.020
			Added	18.43.010
			Dltd	18.44.010, 18.44.020
			Added	18.44.010
				18.45.010—18.45.030
			Dltd	18.46.010, 18.46.020
			Added	18.46.010
			Dltd	18.47.010—18.47.090
			Added	18.47.010—18.47.080
			Dltd	18.48.010—18.48.800
			Added	18.48.010—18.48.790
			Dltd	18.49.010—18.49.070
			Added	18.49.010—18.49.060
			Dltd	18.50.010—18.50.070
			Added	18.50.010—18.50.060
				18.60.010—18.60.220
				18.61.010—18.61.050
				18.62.010—18.62.100
				18.63.010—18.63.030
				18.64.010—18.64.090
				18.65.010—18.65.040
				18.66.010—18.66.050
				18.67.010—18.67.090
				18.68.010—18.68.222
				18.69.010—18.69.050
				18.70.010—18.70.070
				18.71.010—18.71.120
				18.72.010—18.72.060
			Dltd	Ch. 18.73 §§ 18.73.010—18.73.280
				18.74.010—18.74.070

Ordinance Number	Date	Description	Section	Section this Code
				18.75.010—18.75.090
				18.76.010—18.76.050
			Added	Ch. 18.77 §§ 18.77.010—18.77.050
				18.99.010
ORD-19-0032	11-19-2019	Various Code and Zoning Code amendments	1	Ch. 3.90 title
				3.90.010, 3.90.020
			2	8.56.020.C
			3, 4	8.76.010.E, J
			5	8.76.017.C
			6	8.76.030
			7	8.76.110
			8	9.37.170
			9	14.04.015
			10	14.08.010—14.08.340
			11	21.33.045
			12	21.45.400
			13 Added	Ch. 14.44 §§ 14.44.010—14.44.050
			14 Added	Ch. 14.48 §§ 14.48.010—14.48.050
			15 Rpld	Ch. 8.59 §§ 8.59.010—8.59.190
			Rpld	Ch. 14.32 §§ 14.32.010—14.32.070
ORD-19-0033	12- 3-2019	Prohibiting the sale of certain flavored tobacco products	2 Added	Ch. 5.94 §§ 5.94.010—5.94.050
ORD-19-0034	12- 3-2019	Regulation of amusements and gambling	1	5.69.050.A
			2, 3	5.69.090.A, B
			4	9.24.030
			5 Rpld	9.24.050
ORD-19-0035 (Emerg.)	12-10-2019	Tenant relocation assistance	1 Rpld	Ch. 8.97 §§ 8.97.010—8.97.070
ORD-20-0001	1- 7-2020	Marijuana businesses business license tax rates	1	3.80.261.C.4
ORD-20-0002	1- 7-2020	Regulation of nuisance motels	1 Added	Ch. 5.57 §§ 5.57.010—5.57.040
ORD-20-0003	1-21-2020	Separate license for each place of business - Exception for booth selling and independent contractors	1	380.420.5
ORD-20-0004	1-21-2020	Private family daycare homes	1	3.80.327
ORD-20-0005	2- 4-2020	Belmont Pier Planned Development District		Special
ORD-20-0006	2- 4-2020	Rezone 1910-05 (ZCHG19-005)		Special
ORD-20-0007 (Emerg.)	2-18-2020	Just cause for termination of tenancies	1 Added	Ch. 8.99 §§ 8.99.010, 8.99.020
ORD-20-0008	2-18-2020	Electronic filing of campaign disclosure statements	1	2.02.010

Ordinance Number	Date	Description	Section	Section this Code
ORD-20-0009	2-18-2020	Prohibiting the use and sale of single-use food and beverage containers, packaging and food service ware made of expanded polystyrene (EPS) foam, rigid polystyrene #6, and non-recyclable and non-compostable material for prepared food distribution, and the distribution of plastic or bio-plastic straws	1, 2	8.63.020, 8.63.030
			3	8.63.050
			4	8.63.070
ORD-20-0010 (Emerg.)	3-24-2020	Temporary prohibition of evictions due to COVID-19	1 Added	Ch. 8.100 §§ 8.100.010—8.100.080
Measure A	4-14-2020	Extend and adjust the rate of a transactions and use tax to be administered by the California Department of Tax and Fee Administration	Att. 1	3.62.010—3.62.130
			Added	3.62.140
Measure B	4-14-2020	General purpose tax imposed	1	3.64.035
ORD-20-0011	4-21-2020	Cannabis businesses	1	21.15.441.1
			2	21.15.441.3
			3, 4	Ch. 21.33, table 33-2
			5 Added	21.15.441.5
ORD-20-0012	4-21-2020	Cannabis businesses and personal cultivation	1	5.92.765
			2 Added	Ch. 8.13 §§ 8.13.010—8.13.030
ORD-20-0013 (Emerg.)	5-12-2020	Temporary enforcement of Long Beach health orders related to COVID-19	1 Added	Ch. 8.120 §§ 8.120.010—8.120.040
ORD-20-0014	5-12-2020	Sale of unclaimed property	1	2.78.010—2.78.060
ORD-20-0015	5-19-2020	COVID-19 Citywide worker recall	1 Added	Ch. 5.55 §§ 5.55.010—5.55.090
ORD-20-0016	5-19-2020	COVID-19 Citywide worker retention provisions	1 Added	Ch. 5.53 §§ 5.53.010—5.53.090
ORD-20-0017 (Emerg.)	5-19-2020	COVID-19 Paid supplemental sick leave	1 Added	Ch. 8.110 §§ 8.110.010—8.110.160
ORD-20-0018	5-19-2020	Various zoning code regulations	1	21.21.201
			2	Ch. 21.21, table 21-1
			3	21.31.245.A.3
			4	21.31.245.C.4
			5	Ch. 21.31, table 31-1
			6	Ch. 21.31, table 31-2A
			7	Ch. 21.31, table 31-7
			8—10	21.32.110—21.32.130
			11	21.32.225.A.1
			12	21.32.235
			13, 14	Ch. 21.32, table 32-1
			15—17	Ch. 21.33, table 33-2
			18 Dltd	21.37.010—21.37.330
			Added	21.37.110—21.37.240
			19	Ch. 21.41, table 41-1C
			20 Added	21.15.2395
			21 Added	21.15.3005

Ordinance Number	Date	Description	Section	Section this Code
			22 Added	Ch. 21.32, table 32-0
			23 Added	21.45.151
			24 Added	21.53.115
			25 Rpld	Ch. 21.32, table 32-1A
ORD-20-0019	5-19-2020	PD-32 North and PD-32 South		Special
ORD-20-0020 (Emerg.)	5-26-2020	Temporary prohibition of evictions due to COVID-19	1	8.100.030.A
			2, 3	8.100.040, 8.100.050
ORD-20-0021	6-16-2020	Commission compensation	1	2.06.060
			2	2.18.050.D
			3	2.63.030.A
ORD-20-0022	6-16-2020	Extension of the expiration period for certain certificates of appropriateness and modifying the expiration period for future approvals	1	2.63.080.I
			2	20.20.050
			3 Added	2.63.080.J
			4 Added	20.12.180.C
ORD-20-0023	6-16-2020	Extension of the expiration date for certain subdivision and entitlement approvals and modifying the expiration period for future approvals	1	21.21.406
ORD-20-0024	6-23-2020	Short-term rentals	1 Added	Ch. 5.77 §§ 5.77.010—5.77.120
ORD-20-0025	7- 7-2020	Assrmbly uses, Urban Agriculture, wireless telecommunication facilities and adult-use cannabis regulations	1	21.25.903
			2	21.25.904.C
			3	21.31.110
			4	Ch. 21.31, table 31-1
			5, 6	Ch. 21.32, table 32-1
			8	21.33.060.C
			9	Ch. 2133, table 33-2
			10	21.52.232
			11	21.52.260
			12	21.56.030.C
			13	21.56.100.J
			14	21.56.120
			15	21.56.140.C
ORD-20-0026	7-14-2020	Interim housing	1	21.15.966
			2	21.15.2290
			3	21.15.2795
			4	21.15.2810
			5	21.15.2985
			6	21.15.3095
			7—9	Ch. 21.31, table 31-1
			10—12	Ch. 21.32, table 32-1
			13	Ch. 21.33, table 33-2

Ordinance Number	Date	Description	Section		Section this Code
			14		Ch. 21.34, table 34-1
			15	Added	21.15.1475
			16	Added	21.15.2382
			17	Added	21.15.2793
			18	Added	21.45.153
			19	Added	21.15.163
			20	Added	21.51.278
			21	Added	21.52.238
			22	Added	21.52.269.1
			23	Rpld	21.15.2475
ORD-20-0027	7-14-2020	Parking at city-owned and operated lots with disabled person or DP plate or placard	1	Added	10.34.040
ORD-20-0028 (Emerg.)	7-29-2020	Temporary prohibition of evictions due to COVID-19	1		8.100.030.A
			2		8.100.040
ORD-20-0029	8-18-2020	Rezone 1707-10			Special
ORD-20-0030	8-18-2020	Rezone 1707-11			Special
ORD-20-0031	8-18-2020	Establishing a 19-ton weight and load limit on the Toledo Bridge over Rivo Alto Canal	1	Added	Ch. 10.80 §§ 10.80.010—10.80.030
ORD-20-0032	9- 1-2020	Rezone ZCHG20-001			Special
ORD-20-0033 (Emerg.)	9- 8-2020	Water and sewer rates			Special
ORD-20-0034	9- 8-2020	Establishing a 34-ton weight and load limit on the Ravenna Bridge over Rivo Alto Canal	1	Added	Ch. 10.81 §§ 10.81.010—10.81.030
ORD-20-0035	9- 8-2020	Charles A. Buffum House Historic Landmark	1	Added	16.52.2350
ORD-20-0036	9- 8-2020	W.L. Porterfield Duplex Historic Landmark	1	Added	16.52.2360
ORD-20-0037 (Emerg.)	9- 8-2020	Fiscal year 2020-2021 budget adopted			Special
ORD-20-0038	9-15-2020	Departmental organization			Special
ORD-20-0039	10- 6-2020	PD-32 North and PD-32 South (Douglas Park)			Special
ORD-20-0040	10- 6-2020	Zoning Code regulations	1		Ch. 21.32, table 32-1
			2		Ch. 21.33, table 33-2
			3		Ch. 21.41, table 41-1C
ORD-20-0041	10- 6-2020	Interim motel/hotel conversions	1	Added	Ch. 21.65 §§ 21.65.010—21.65.080
ORD-20-0042	10-20-2020	Hours of operation for medical and adult-use marijuana dispensaries	1		5.90.200
			2		5.92.915
ORD-20-0043 (Emerg.)	11- 2-2020	COVID-19 health orders	1		8.120.010.D
			2		8.120.040
ORD-20-0044 (Emerg.)	11- 2-2020	Tenant harassment	1	Added	Ch. 8.101 §§ 8.101.010—8.101.060
Measure US	11- 3-2020	Oil barrel production tax increase	1		3.80.221.A
				Added	3.80.221.G
ORD-20-0045 (Emerg.)	12- 8-2020	Short-term rentals	1		5.77.010—5.77.070
				Added	5.77.080

Ordinance Number	Date	Description	Section	Section this Code
			Rnbd	5.77.080—5.77.120
			as	5.77.090—5.77.130
ORD-20-0046	12- 8-2020	Uplan Zoning Code	1(Att. A) Added	Tit. 22 §§ 22.10.010—22.30.140
ORD-20-0047	12- 8-2020	Rezone ZCA20-004		Special
ORD-20-0048	12- 8-2020	Micro-Units	1 Added	21.15.1756
			2 Added	21.45.600
ORD-20-0049 (Emerg.)	12- 8-2020	Prohibition of tenant harassment	1	8.101.030
ORD-20-0050	12-15-2020	Historic landmark designation: The Miner Smith Bungalow Mansion (1920)	1 Added	16.52.2390
ORD-20-0051	12-15-2020	Historic landmark designation: The Miner Smith Bungalow Mansion (1921)	1 Added	16.52.2380
ORD-20-0052	12-15-2020	Historic landmark designation: The Brady House	1 Added	16.52.2370
ORD-21-0001	1- 5-2021	Public employees'retirement system contract amendment		Special
ORD-21-0002	1-12-2021	Unpermitted Dwelling Unit Amnesty Program	1 Added	Ch. 21.66 §§ 21.66.010—21.66.070
ORD-21-0003 (Emerg.)	1-19-2021	Temporary enforcement of COVID-19 health orders	1	8.120.010.D
			2	8.120.020.B
			3, 4	8.120.030, 8.120.040
ORD-21-0004 (Emerg.)	1-19-2021	Premium pay for grocery workers	1 Added	Ch. 5.91 §§ 5.91.005—5.91.150
ORD-21-0005 (Emerg.)	1-19-2021	Third-party food delivery service fees	1 Added	Ch. 5.95 §§ 5.95.010—5.95.050
ORD-21-0006	2- 2-2021	Inclusionary housing	1 Added	Ch. 21.67 §§ 21.67.010—21.67.130
			2 Rpld	Ch. 21.60 §§ 21.60.110—21.60.710
ORD-21-0007	2- 2-2021	No net loss—Affordable residential housing	1 Added	Ch. 21.11 §§ 21.11.010—21.11.060
ORD-21-0008	2- 9-2021	Rezone ZCHG18-006		Special
ORD-21-0009	2- 9-2021	Midtown Specific Plan boundary change		Special
ORD-21-0010	2- 9-2021	5800 block of Linden Ave. setback requirements		Special
ORD-21-0011	4-13-2021	Rezone ZCHG 20-03		Special
ORD-21-0012	4-13-2021	Sale of flavored tobacco products	2	5.81.010
			3	5.81.070
			4 Rpld	Ch. 5.94 §§ 5.94.010—5.94.050
ORD-21-0013	4-20-2021	Rezone 2005-08/ZCHG-20-004		Special
ORD-21-0014	4-20-2021	Transportation improvements credit for Shoreline Gateway project		Special
ORD-21-0015	6- 1-2021	PD-13-Atlantic Aviation Center (repealed) (superseded by SP-3 Globemaster Corridor Specific Plan	1	21.37.120.13
			2 Added	21.37.210.3
ORD-21-0016	6- 1-2021	Globemaster Corridor Specific Plan		Special
ORD-21-0017 (Emerg.)	6- 8-2021	Fireworks	1 Added	Ch. 8.81 §§ 8.81.010—8.81.060

Ordinance Number	Date	Description	Section	Section this Code
			4 Rpld	16.08.600
ORD-21-0018	6- 8-2021	Construction in the vicinity of abandoned oil wells	1 Added	Ch. 18.78 §§ 18.78.010—18.78.270
ORD-21-0019	6- 8-2021	Methane gas mitigation	1 Added	Ch. 18.79 §§ 18.79.010—18.79.120
ORD-21-0020 (Emerg.)	6-15-2021	Imposing moratorium on applications for building permits, construction or occupancy permits, and other entitlements for new residential construction along certain transportation corridors on Willow Street, west of the I-710 freeway to the City terminus; and Santa Fe Avenue, between Pacific Coast Highway on the south and Wardlow Road on the north, in the West Long Beach area of the City		Special
ORD-21-0021	7- 6-2021	Operation of adult-use cannabis dispensaries	1	5.92.420.A.5
			2	5.92.760.A
			3 Added	5.92.765.C.7
			4 Added	5.92.955.D
ORD-21-0022 (Emerg.)	7-13-2021	Temporary prohibition of demolition and substantial no-fault notices and evictions	1 Added	Ch. 8.102 §§ 8.102.010—8.102.040
ORD-21-0023	7-13-2021	Shared-use cannabis manufacturing	1, 2	5.92.030
			3	5.92.455.D.4
			4—6 Dltd	5.92.860
			Rnbd	5.92.870, 5.92.880
			as	5.92.860, 5.92.870
			7—10	5.92.1610—5.92.1640
			11 Rnbd	Ch. 5.92, Div. VII §§ 5.92.1210—5.92.1240
			as	Ch. 5.92, Div. VIII §§ 5.92.1310—5.92.1340
			12 Rnbd	Ch. 5.92, Div. VIII §§ 5.92.1310—5.92.1370
			as	Ch. 5.92, Div. IX §§ 5.92.1410—5.92.1470
			13 Rnbd	Ch. 5.92, Div. IX §§ 5.92.1410—5.92.1495
			as	Ch. 5.92, Div. X §§ 5.92.1510—5.92.1595
			14 Rnbd	Ch. 5.92, Div. X §§ 5.92.1510—5.92.1550
			as	Ch. 5.92, Div. XI §§ 5.92.1610—5.92.1650
			15 Added	Ch. 5.92 Div. VII §§ 5.92.1210—5.92.1280
ORD-21-0024	7-20-2021	Rezone ZCHG 17-008		Special
ORD-21-0025	7-20-2021	Restating the Belmont Pier Planned Development District (PD-2)		Special
ORD-21-0026	7-20-2021	Rezone 1910-05 (ZCHG21-001)		Special
ORD-21-0027	7-20-2021	Maintenance of low income housing in the Coastal Zone	1	21.61.010—21.61.090
ORD-21-0028	8-10-2021	Various zoning regulations	1	21.27.130
			2	Ch. 21.32, table 32-1
			3	Ch. 21.32, table 32-2

Ordinance Number	Date	Description	Section	Section this Code
			4	Ch. 21.32, table 32-2A
			5	Ch. 21.34, table 34-2
			6	21.33.130.E
			7	Ch. 21.51, table 51.276-1
ORD-21-0029 (Emerg.)	8-17-2021	Health orders related to COVID-19	1	8.120.010
			2	8.120.040
ORD-21-0030 (Emerg.)	8-24-2021	2021-2022 fiscal year budget adopted		Special
ORD-21-0031 (Emerg.)	9- 7-2021	Water and sewer rates		Special
ORD-21-0032	9- 7-2021	Departmental organization		Special
ORD-21-0033	9-14-2021	Speed limits	1	10.12.010.A.5
			2 Rpld	10.12.010.A.6
			3	10.12.010.A.7
			4	10.12.010.A.10
			5, 6	10.12.010.A.26, A.27
			7	10.12.010.A.34
			8	10.12.010.A.49
			9	10.12.010.A.51
			10	10.12.020.A.6
			11	10.12.020.A.8
			12	10.12.020.A.22
			13	10.12.020.A.26
			14	10.12.020.A.44
			15	10.12.020.A.46
			16	10.12.020.A.54
			17 Rpld	10.12.020.A.55
			18 Added	10.12.030.4
ORD-21-0034	10- 5-2021	Enhanced density bonus regulations	1 Added	Ch. 21.68 §§ 21.68.010—21.68.100
			2 Added	21.25.506.A.7
ORD-21-0035	10- 5-2021	Exemptions to the payment of impact fees for moderate income housing projects	1	18.15.110.A.2.e
			2	18.16.110.A.2.e
			3	18.17.130.B.5
			4	18.18.120.E
ORD-21-0036	11- 9-2021	Equity and Human Relations Commission	1 Dltd	2.44.010—2.44.060
			Added	2.44.010—2.44.050
ORD-21-0037	11- 9-2021	Agreement amendment; California Public Employees Retirement System		Special
ORD-21-0038	11-16-2021	Procurement and management of job order contracts	1, 2	2.84.100, 2.84.110
ORD-21-0039 (Emerg.)	12- 7-2021	Temporary prohibition of demolition and substantial no-fault notices and evictions	1	8.102.010—8.102.040
ORD-21-0040	12- 7-2021	Compliance with the Short-Lived Climate Pollutants Reduction Act (SB 1383)	1	Ch. 8.60 title

Ordinance Number	Date	Description	Section	Section this Code
			2—4	8.60.010—8.60.025
			5	8.60.060
			6	8.60.087.5
			7	8.60.140
			8	18.67.030
			9	18.67.070
			10 Added	8.60.370
			11 Added	18.67.100
			12 Added	21.42.060
ORD-21-0041 (Emerg.)	12- 7-2021	School board districts	1	1.27.010
ORD-22-0001	1- 4-2022	Authority of City purchasing agent and others to contract	1	2.84.010
ORD-22-0002	2- 8-2022	Gender references	1 Added	1.08.150
ORD-22-0003 (Emerg.)	2- 8-2022	Temporary enforcement of Long Beach health orders	1	8.120.010.D
			2	8.120.040
ORD-22-0004	2-15-2022	Inclusionary housing	1	21.67.010—21.67.130
ORD-22-0005	2-15-2022	No net loss of affordable residential housing units in the city	1	21.11.010—21.11.060
ORD-22-0006	2-15-2022	Just cause for termination of tenancies	1	8.99.010, 8.99.020
ORD-22-0007	2-15-2022	Temporary prohibition of demolition and substantial no-fault notices and evictions	1	8.102.010—8.102.040
ORD-22-0008	3- 8-2022	Prohibiting spectators at street races, sideshows, and reckless driving exhibitions	1 Added	Ch. 10.82 §§ 10.82.010—10.82.030
ORD-22-0009	3- 8-2022	COVID-19 worker retention	1	5.53.010—5.53.080
			2 Rpld	5.53.090
ORD-22-0010	3- 8-2022	COVID-19 Citywide worker recall	1	5.55.010—5.55.080
			2 Rpld	5.55.090
ORD-22-0011	3-15-2022	Short-term rentals	1	5.77.010—5.77.130
ORD-22-0012	3-15-2022	Short-term rental modifications by the Coastal Commission	1 Added	21.15.2487
			2	21.25.903.B
			3	21.25.904.C
ORD-22-0015	5-24-2022	Regulation of cannabis retail storefront (dispensary) business licenses and the cannabis social equity program	1	5.90.030
			2	5.90.060
			3 Added	5.90.310
			4	5.92.010—5.92.1595
			Dltd	5.92.1610—5.92.1650
			Added	5.92.1610—5.92.1665
ORD-22-0016 (Emerg.)	6-14-2022	Extending the moratorium imposed by ORD-21-0020(Emerg.) for 12 months		Special
ORD-22-0017	7- 5-2022	Setting aside and dedicating in perpetuity certain lands owned by the City of Long Beach for public parks		Special
ORD-22-0018	7- 5-2022	Amending the use district map for parks rezoning		Special

Ordinance Number	Date	Description	Section	Section this Code
ORD-22-0019	7- 5-2022	Park dedications/designations	1	Ch. 21.35, table 35-2
ORD-22-0020	8- 2-2022	Marina and Pacific Ocean areas	1	16.08.023
			2, 3	16.08.025, 16.08.026
			4	16.08.140
			5	16.08.551
			6	16.08.650.A
			7	Ch. 16.12, Art. III title
			8, 9	16.12.060, 16.12.061
			10	16.12.162
			11, 12	16.12.270, 16.12.280
			13 Rpld	16.08.024
ORD-22-0021	8- 9-2022	Establishing and designating political subdivisions or districts; final adopted maps	1	1.20.010
			2 Added	1.20.020
ORD-22-0022	8-16-2022	Establish a minimum wage for covered health-care workers	2 Added	Ch. 5.96 §§ 5.96.010—5.96.110
ORD-22-0023	9- 6-2022	Park dedications/designations	1	title 21, table 35-2
ORD-22-0024	9- 6-2022	Rezone ZCA22-001		Special
ORD-22-0025	9- 6-2022	Setting aside and dedicating lands for public park use		Special
ORD-22-0026 (Emerg.)	9- 6-2022	2022-2023 fiscal year budget adopted		Special
ORD-22-0027	9-13-2022	Departmental organization		Special
ORD-22-0028 (Emerg.)	10-11-2022	Military equipment funding, acquisition, use and reporting requirements policy		Special
ORD-22-0029	11-15-2022	Procedures for public comment and disruptions at public meetings	1	2.03.040
			2	2.03.090
			3	2.03.100.A
			4	2.03.140
ORD-22-0030	11-15-2022	Refund—Conditions of payment	1	3.48.040
ORD-22-0031	11-15-2022	Prohibiting adults not accompanying children ages 12 and under from park playgrounds	1 Added	16.16.140
ORD-22-0032	11-15-2022	Sensitive Coastal Resource Impact Fee	1 Added	Ch. 18.19 §§ 18.19.010—18.19.170
ORD-22-0033	11-15-2022	Amending and restating Title 18, Building Standards Code	1(Exh. A) Dltd	18.01.010—18.100.040
			Added	18.01.010—18.99.010
ORD-22-0034	11-15-2022	Stormwater and runoff pollution control provisions	1, 2	8.96.040, 8.96.050
			3—8	8.96.080—8.96.130
			9	8.96.210
ORD-22-0035	12- 6-2022	Code of Conduct and Ethics	1 Dltd	2.07.010, 2.07.020
			Added	2.07.010—2.07.030
ORD-22-0036	12- 6-2022	Rezone 2003-24		Special
ORD-22-0037	12- 6-2022	Development agreement application (River Park)		Special
ORD-22-0038	12- 6-2022	Board of Harbor Commissioners delegated authority		Special

Ordinance Number	Date	Description	Section	Section this Code
ORD-22-0039	12- 6-2022	California Public Employees' Retirement System contract amendment		Special
ORD-23-001 (Emerg.)	1-10-2023	Temporary suspension of certain provisions during local emergency caused by homelessness	1 Added	Ch. 18.100 §§ 18.100.010—18.100.040
			2 Added	Ch. 21.69 §§ 21.69.010—21.69.040
			3 Added	Ch. 22.35 §§ 22.35.010—22.35.030
ORD-23-0002	1-24-2023	Parklets	1, 2	14.15.020, 14.15.030
			3, 4	14.15.100, 14.15.110
ORD-23-0003 (Emerg.)	1-24-2023	Suspension of certain Chapter 2.84 provisions	1 Added	2.84.170
ORD-23-0004	2- 7-2023	Rezone ZCHG21-003		Special
ORD-23-0005	2- 7-2023	Removal of a five-foot special setback at 4101 Long Beach Blvd.		Special
ORD-23-0006	2- 7-2023	Amendment to California State University Research and Technology Center/Villages PD-31		Special
ORD-23-0007	2- 7-2023	Amending portions of California State University Research and Technology Center/Villages PD-31 to SP-4		Special
ORD-23-0008	2- 7-2023	SP-4—Century Villages at Cabrillo	1	21.37.120.31
			2 Added	21.37.210.4
ORD-23-0009	2-14-2023	Repealing ORD-21-0013		Special
ORD-23-0010	2-21-2023	Long Beach Certified Uniform Program Agency	1	8.85.010—8.85.060
			2	8.87.010—8.87.050
ORD-23-0011	3- 7-2023	Rezone 2103-41 (ZCHG20-009)		Special
ORD-23-0012	3- 7-2023	Local preference, to raise the preference cap	1	2.84.030.C
ORD-23-0013	3- 7-2023	COVID-19 paid supplemental sick leave provisions	1 Rpld	Ch. 8.110 §§ 8.110.010—8.110.160
ORD-23-0014	3-21-2023	Temporary enforcement of Long Beach health orders related to COVID-19 provisions	1 Rpld	Ch. 8.120 §§ 8.120.010—8.120.040
ORD-23-0015	3-21-2023	Flavored tobacco products	1 Rpld	5.81.070.F
ORD-23-0016	3-21-2023	Mark Bixby Memorial Bicycle-Pedestrian Path	1	10.48.060
			2	10.51.050
			3	10.52.040
			4	10.54.040
ORD-23-0017	4-11-2023	Boxing and wrestling exhibition permits	1, 2	5.24.010, 5.25.020
			3	5.24.080
			4	5.24.140
ORD-23-0018	4-18-2023	Departmental organization		Special
ORD-23-0019	4-18-2023	Compensation and training requirements for members of boards and commissions	1	2.18.050
			2 Rpld	2.06.060
ORD-23-0020	5- 2-2023	Speed limits	1—3	10.12.010—10.12.030
ORD-23-0021	5- 9-2023	Charter Commission appointment confirmation procedure	1	2.03.065
ORD-23-0022	5- 9-2023	Additional incentives for essential retail	1(Att. A)	22-1.010, 22.10.020

Ordinance Number	Date	Description	Section	Section this Code
				22.15.030 table 2B
				Ch. 22.25 title
				22.25.010—22.25.050
			Added	22.25.060
ORD-23-0023	5- 9-2023	Rezone 2105-33 (ZCA21-006)		Special
ORD-23-0024	5-16-2023	Director of civil defense emergency powers	1	2.69.060
ORD-23-0025	5-23-2023	Local coastal development permits; interim motel/hotel conversions; and unpermitted dwelling unit amnesty program	1	21.25.903.B
			2	21.25.904
			3	21.65.030
			4	21.65.060
			5	21.66.020
			6	21.66.040
			7, 8	21.66.060, 21.66.070
ORD-23-0026	6- 6-2023	Operation of adult-use dispensaries in mixed-use buildings in downtown	1	5.92.420.B
			2	5.92.760.A
			3	5.92.765
			4	5.92.955
ORD-23-0027	6-13-2023	Noise Ordinance amendments	1	8.80.030
			2, 3	8.80.160
			4	8.80.170.A
ORD-23-0028	6-20-2023	Advisory Commission on Aging	1	2.57.010—2.57.030
ORD-23-0029	8- 1-2023	Commission on Women and Girls	1 Added	Ch. 2.45 §§ 2.45.010—2.45.070
ORD-23-0030	8- 1-2023	Board of Harbor Commissioners authority to enforce statutes and ordinances outside the Harbor District		Special
ORD-23-0031	8-15-2023	Climate Resilient and Sustainable City Commission	1	Ch. 2.38 title
			2	2.38.010
ORD-23-0032	8-15-2023	Reduce the adult-use and medical cannabis cultivation and retail taxes for equity businesses	1, 2	3.80.261.A, C
ORD-23-0033 (Emerg.)	9- 5-2023	Water, sewer and gas rates		Special
ORD-23-0034 (Emerg.)	9- 5-2023	Fiscal Year 2023-2024 budget		Special
ORD-23-0035	9-12-2023	Departmental organization		Special
ORD-23-0036	10- 3-2023	Site plan review and enhanced density bonus	1	21.68.020
			2	21.68.040.A
			3	21.68.050 table 21.68-1
			4	21.68.060
			5	21.68.070.A
			6	21.68.090
			7	21.25.506.A.7

Ordinance Number	Date	Description	Section	Section this Code
ORD-23-0037	10-10-2023	Single job order thresholds for projects which address ongoing impacts caused by homelessness	1	2.84.170
ORD-23-0038	11-14-2023	Historic landmark designation—Berg Office Building	1 Added	16.52.2400
ORD-23-0039	11-14-2023	Historic landmark designation—F.W. Rehbock House	1 Added	16.52.2410
ORD-23-0040	11-14-2023	Historic landmark designation—Mr. and Mrs. Maury Frank House	1 Added	16.52.2420
ORD-23-0041	11-14-2023	Historic landmark designation—McMullen House	1 Added	16.52.2430
ORD-23-0042	11-14-2023	Historic landmark designation—Royal Hotel Building	1 Added	16.52.2440
ORD-23-0043	11-14-2023	Historic landmark designation—Craig House	1 Added	16.52.2450
ORD-23-0044	11-14-2023	Historic landmark designation—Lily Fremont House	1 Added	16.52.2460
ORD-23-0045	11-14-2023	Historic landmark designation—Lovett O'Brien House	1 Added	16.52.2470
ORD-23-0046	11-14-2023	Historic landmark designation—Powell House	1 Added	16.52.2480
ORD-23-0047	11-14-2023	Historic landmark designation—Bratsalis House	1 Added	16.52.2490
ORD-23-0048	11-14-2023	Healthcare workers minimum wage	2 Rpld	Ch. 5.96 §§ 5.96.010—5.96.110
ORD-23-0049	11-14-2023	Municipal elections	2(Exh. A) Dltd	1.15.010—1.15.070
			Added	1.15.010—1.15.620
				2.01.1030
			3(Exh. A)	2.01.320
				2.01.410
				2.01.630
				2.01.1110.B
			4(Exh. A) Added	2.01.1010
			5 Rpld	Ch. 1.21 §§ 1.21.090
			Rpld	Ch. 1.22 §§ 1.22.010—1.22.110
			Rpld	Ch. 1.24 §§ 1.24.010—1.24.150
			Rpld	Ch. 1.25 §§ 1.25.010—1.25.030
			Rpld	Ch. 1.26 § 1.26.010
			Rpld	Ch. 2.02 §§ 2.02.010, 2.02.020
ORD-23-0050	12-19-2023	Housing Trust Fund	1—4	3.92.010—3.92.040
ORD-23-0051	12-19-2023	Subdivisions	1(Exh. A) Rpld	Title 20 §§ 20.04.010—20.40.100
			Added	Title 20 §§ 20.01.010—20.36.310
ORD-23-0052	12-19-2023	Permits, parking, street and sidewalk widths, and landscaping requirements	1	18.04.040.A.3
			2, 3	21.31.340.D, G
			4, 5	21.31.350.B, E

Ordinance Number	Date	Description	Section	Section this Code
			6	21.42.050.C.1
ORD-24-0001 (Emerg.)	1-16-2024	Adopting the 2023 Military Equipment Special Order of the Long Beach Police Department		Special
ORD-24-0002	1-23-2024	Sidewalk vendors	1 Added	Ch. 5.73 §§ 5.73.010—5.73.180
			2	3.80.146
			3	380.180
			4	3.80.253
			5	5.04.050
			6	5.08.010—5.08.050
			7	5.66.010
			Dltd	5.66.015
				5.66.020—5.66.040
			Dltd	5.66.045—5.66.060
				5.66.070
			8	Ch. 8.44 title
			9, 10	8.44.040, 8.44.050
			11	8.44.061
			12	8.44.070
			13	14.04.010—14.04.040
			Dltd	14.04.050
				14.04.060
			14 Dltd	14.14.010—14.14.200
			Added	14.14.010—14.14.055
			15	16.04.010—16.04.100
			16	16.08.504
			17	16.16.060
ORD-24-0003	1-23-2024	Vending carts	1	21.35.120
			2	21.45.170
ORD-24-0004	2-13-2024	Regulations of City Council established boards, commissions, and committees	2(Exh. A)	2.18.050
			3(Exh. A)	2.18.070
				2.18.090.B
ORD-24-0005	2-20-2024	Historic landmark designation—3917 Long Beach Boulevard	1 Added	16.52.2500
ORD-24-0006	2-20-2024	Transportation improvement fee credit		Special
ORD-24-0007	3-12-2024	California Public Employees' Retirement System contract amendment		Special
ORD-24-0008	4- 2-2024	City Library rules	1 Added	Ch. 9.33 §§ 9.33.010—9.33.030
ORD-24-0009	4-16-2024	Marijuana businesses	1	3.80.261
ORD-24-0010	4-23-2024	Rezone ZCHG22-005		Special
Measure RW	3- 5-2024	Minimum wages payable to hotel workers	1(Exh. A)	5.48.020
ORD-24-0011 (Emerg.)	5-14-2024	Just cause for termination of tenancies	1	8.99.010, 8.99.020
ORD-24-0012	9-10-2024	Official budget of fiscal year 2024—2025		Special

Ordinance Number	Date	Description	Section	Section this Code
ORD-24-0013	9-10-2024	Use District Map		Special
ORD-24-0014	9-17-2024	Amendment to Ordinance No. C-6496		Special
ORD-24-0015	10- 1-2024	Transitional Zoning Code: Zone in specified areas	1 Rpld	22.10.010, 22.10.020,
				22.15.010—22.15.030,
				22.20.010—22.20.040,
				22.25.010—22.25.060,
				22.30.010—22.30.140,
				22.35.010—22.35.030
			Added	22.10.010, 22.10.020,
				22.12.010—22.12.040,
				22.15.010—22.15.030,
				22.20.010—22.20.090,
				22.25.010—22.25.060,
				22.30.010—22.30.140,
				22.35.010—22.35.030,
				22.40.010—22.40.060,
				22.41.010—22.41.070
ORD-24-0016	10- 1-2024	Use District Map		Special
ORD-24-0017	10- 1-2024	Use District Map		Special
ORD-24-0018	10- 8-2024	Requirement and responsibility of permittee	1	18.04.070
ORD-24-0019	11-12-2024	Contract work		Special
ORD-24-0020	11-19-2024	Marine classification titles	1	6.16.210B.
			2	16.08.340A.
			3	16.08.341
ORD-24-0021	11-19-2024	Designation of property at 82 Rivo Alto Canal as a historic landmark	1 Added	16.52.2510
ORD-24-0022	11-19-2024	Designation of property located at 4210 California Avenue as a historic landmark	1 Added	16.52.2520
ORD-24-0023	11-19-2024	Designation of property located at 4401 Myrtle Avenue as a historic landmark	1 Added	16.52.2530
ORD-24-0024	12-10-2024	Regulation of adult-use cannabis delivery-only dispensary	1	5.92.420
			2	5.92.910
			3	5.92.960
			4 Added	5.92.1710—5.92.1745
ORD-24-0025	12-10-2024	Adult-use cannabis delivery-only dispensary	1 Added	21.15.114
			2	21.45.700
			3	21.15.113
			4	21.32.130 Table 32-1
			5	21.33.080 Table 33-2
			2	3.62.050
			3	3.62.140B.
			4	3.62.140C.
			5	3.62.140D.

Ordinance Number	Date	Description	Section	Section this Code
ORD-24-0026	12-10-2024	Adult-use cannabis delivery-only dispensary in RMU/MU zones	1	22.15.030 Tables 15-2, 15-3
ORD-24-0027	12-12-2024	Transactions and Use Tax	1	3.62.030
ORD-24-0028	12-17-2024	Special order of the Long Beach Police Department creating policy for funding, acquisition, use and reporting requirements for military equipment		Special
ORD-24-0029	12-17-2024	Dedicating certain lands for public park purposes and uses		Special
ORD-24-0030	12-17-2024	Park dedications/designations	1	21.35.120 Table 35-2
ORD-24-0031	12-17-2024	Amending the Use District Map for park rezoning		Special
ORD-24-0032	12-17-2024	Use in parks districts; sidewalk vending is a permitted use	1	21.35.120 Table 35-1
			2	21.45.170
ORD-24-0033	12-17-2024	Parking requirements	1 Added	21.15.365
			2 Added	21.15.993
			3 Added	21.15.1578
			4 Added	21.27.080
			5 Added	21.41.165
			6 Added	21.41.175
			7 Added	21.41.180
			8 Added	21.41.185
			9 Added	21.41.190
			10 Added	21.41.224
			11 Added	21.41.315
			12	21.15.1990
			13	21.25.403
			14	21.27.050
			15	21.27.060
			16	21.27.065
			17	21.27.070
			18	21.41.170
			19	21.41.209
			20	21.41.222
			21	21.41.224
			22	21.41.251
			23	21.41.310
			24	21.45.151
			25	21.45.500
			26	21.52.201
			27	21.52.266
			28	21.52.269
Measure LB	11- 5-2024	Gas users tax	1	3.68.040
ORD-25-0001	2-11-2025	Short-Term Rentals	1 Dltd	5.77.010—5.77.130
			Added	5.77.010—5.77.120

Ordinance Number	Date	Description	Section	Section this Code
ORD-25-0002	3- 4-2025	DocuPet Corp pet licensing services contract		Special
ORD-25-0003	3-18-2025	Municipal elections	2 Rpld	1.15.020.A
			3 Added	2.01.210.B
ORD-25-0004	4- 1-2025	Expand inclusionary housing	1, 2	21.67.010, 21.67.020
			3	21.67.030.A
			4, 5	21.67.040, 21.67.050
			6	21.67.080
			7	21.67.090.B
			8	21.67.110.C
ORD-25-0005	4-22-2025	Airport noise compatibility	1	16.43.010—16.43.120
ORD-25-0006	4-22-2025	Electric scooters on the beach path	1	10.12.020.A
			2	10.38.020
ORD-25-0007	6-10-2025	Transportation improvements fee credit		Special
ORD-25-0008	8- 5-2025	Payment of living wage to workers at the Long Beach Airport, convention center, and temporary amphitheater	1	16.60.010—16.60.100
ORD-25-0009	8-12-2025	Preferential Parking District "U"	1	10.32.110
ORD-25-0010	8-12-2025	Staffing requirements for self-service checkout stations at grocery and drug stores	1 Added	Ch. 5.93 §§ 5.93.010—5.93.080
ORD-25-0011	8-19-2025	Allow the Commercial Storage (CS) Zoning District to utilize height overlays	1	21.39.030
ORD-25-0012	8-19-2025	Rezone ZCHG24-004		Special
ORD-25-0013	8-19-2025	Enhanced drowning prevention measures for private swimming pools	1, 2 Added	18.40.820, 18.40.830
			3, 4 Added	18.41.300, 18.41.310
ORD-25-0014	8-19-2025	Design requirements considering future sea-level for buildings in coastal flood hazard areas	1 Added	18.40.275
			2, 3 Added	18.41.280, 18.41.290
ORD-25-0015	8-19-2025	Requirements for subgrade electrical work in areas with potential methane gas	1	18.79.020
ORD-25-0016	9- 2-2025	Land exchange agreement: Los Angeles County Flood Control District		Special
ORD-25-0017 (Emerg.)	9- 9-2025	2025-2026 fiscal year budget adopted		Special
ORD-25-0018	9-16-2025	Departmental organization		Special
ORD-25-0019	11-11-2025	Amending and restating Title 18, Building Standards Codes	1(Exh. A) Dltd	Chs. 18.01—18.100
			Added	Chs. 18.01—18.99
ORD-25-0020	11-18-2025	Historic landmark designated: Press Telegram Model Home	1 Added	16.52.2540
ORD-25-0021	12- 2-2025	Rezone: ZCH23-001		Special
ORD-25-0022	12-16-2025	Annual benefit assessments; Bixby Knolls parking and business improvement area		Special
ORD-25-0023	12-16-2025	Annual assessments; Zaferia parking and business improvement area		Special
ORD-26-0001	1- 6-2026	Transaction and use tax	2	3.62.030
				3.62.050
				3.62.140.B—D

Ordinance Number	Date	Description	Section	Section this Code
ORD-26-0002	1-13-2026	Annual benefit assessments; Belmont Shore parking and business improvement area		Special
ORD-26-0003	2- 3-2026	Policy for military equipment funding, acquisition, use and reporting requirements		Special
ORD-26-0004	2- 3-2026	Modifying code enforcement definitions, procedures and fees to strengthen enforcement tools, improve compliance, and enhance public safety	1	5.77.060.B
			2	5.77.080.B
			3	8.56.040
			4	8.56.070.B
			5	8.76.015
			6	9.65.200
			7	18.06.080
			8—10	18.20.020—18.20.040
			11	18.20.060
			12	18.20.090
			13, 14	18.20.120, 18.20.130
			15—21	18.20.150—18.20.210
			22, 23	18.20.280, 18.20.290
			24	18.21.010
			25	18.21.020.B
			26	18.29.060—18.29.100
			27	18.30.010—18.30.190
			28 Added	9.65.210
			29 Rpld	8.76.017
			30 Rpld	18.20.140
ORD-26-0005	3-10-2026	Spectators prohibited at street races, sideshows, and reckless driving exhibitions	1	10.82.010—10.82.030
ORD-26-0006	4- 7-2026	Regulation of cannabis special events	1	5.92.030
			2, 3	8.68.160, 8.68.170
			4 Added	5.92.1810—5.92.1850
ORD-26-0007	4- 7-2026	Modifying the taxi regulation modernization pilot program to a permanent taxi program	1	5.80.010.A
			2, 3 Added	5.80.010.R, S
			4	5.80.030
			5	5.80.060
			6	5.80.090
			7—9	5.80.130—5.80.140
			10	5.80.180
			11	5.80.190.A
			12	5.80.292
			13	5.80.310.A
			14	5.80.400
			15—18 Added	5.80.410—5.80.440
ORD-26-0008	4-21-2026	Third-party food delivery service fees	1 Dltd	5.95.010—5.95.050

Ordinance Number	Date	Description	Section	Section this Code
			Added	5.95.010—5.95.060
ORD-26-0009	4-21-2026	Regulations for microenterprise home kitchen operations	1—4	21.15.2310—21.15.2332
			5	21.15.3000
			6	21.51.235
			7 Added	21.15.1755.5
ORD-26-0010	4-21-2026	Microenterprise home kitchen operations	1 Added	Ch. 5.35 §§ 5.35.010—5.35.140
ORD-26-0011	5- 5-2026	Mobile food facilities	1(Exh. A) Rpld	5.37.110—5.37.150
			Added	5.37.010—5.37.150
			2(Exh. B) Rpld	8.40.010—8.40.130
			Added	8.40.010, 8.40.020
			3(Exh. C) Rpld	8.44.010—8.44.230
			Added	8.44.010—8.44.120
			4(Exh. D) Rpld	8.45.010—8.45.110
			Added	8.45.010—8.45.090
			5 Rpld	Ch. 5.51 §§ 5.51.010—5.51.070
			6 Added	10.24.060
ORD-26-0012	5- 5-2026	Mobile food facilities and their operation on private property	1	21.15.1765
			2—4	Ch. 32 Table 32-1
			5	Ch. 21.33 Table 33-2
			6	Ch. 21.35 Table 35-1
			7	21.53.106
			8 Added	21.15.575
			9 Added	21.15.1764
			10 Added	21.45.125
			11 Added	21.45.133.6
			12 Added	21.51.225.5
			13 Added	21.52.219.7.5
ORD-26-0013	5- 5-2026	Definition of mobile food facilities/mobile food trucks and their operation on private property	1	Ch. 22.15 Table 15-2
			2	Ch. 22.15 Table 15-3
			3	Ch. 22.15 Table 15-4
			4, 5	Ch. 22.15 Table 15-5
			6	Ch. 22.25 Table 25-1
ORD-26-0014	6- 9-2026	Inclusionary housing modifications	1, 2	21.67.020.S, T
			3	21.67.020.GG
			4	21.67.050.A.4
			5, 6	21.67.080.B.9, C
ORD-26-0015	6-16-2026	Speed limits	1	10.12.010
			2	10.12.020
			3 Added	10.12.040
ORD-26-0016	6-16-2026			Special

Ordinance Number	Date	Description	Section	Section this Code
ORD-26-0017	6-16-2026		1, 2	21.15.760, 21.15.770
			3	21.15.1400
			4	21.21.201 table 21-1
			5	21.68.010
			6—13	21.68.030—21.68.100
			14 Added	21.15.235
			15 Added	21.15.615
			16 Added	21.15.675
			17, 18 Added	21.15.772, 21.15.774
			19, 20 Added	21.15.812, 21.15.813
			21 Added	21.15.1390
			22 Added	21.15.1448
			23, 24 Added	21.15.1452, 21.15.1454
			25 Added	21.15.3265
			26 Added	21.68.110
			27—29 Rpld	21.15.1410—21.15.1430
			30 Rpld	21.68.020
ORD-26-0018	6-16-2026	Implementing new zoning districts	1	22.11.010.1
			2	22.12.010
			3, 4	22.12.030, 22.12.040
			5	22.15.030 table 15-2
			6	22.15.030 table 15-3
			7	22.30.010
			8	22.30.060
			9	22.30.070
			10	22.30.070 table 30-1
			11	22.30.070 table 30-2
			12	22.30.090.B table 30-3
			13	22.30.090.C table 30-4
			14	22.40.020.C table 40-2
			15	22.40.060.B
			16	22.41.030.2.c
			17 Added	22.30.080
ORD-26-0019	6-16-2026			Special
ORD-26-0020	6-16-2026			Special
ORD-26-0021	8-11-2026			Special
ORD-26-0022	8-18-2026	Electric bicycles	1	10.48.010
			2	10.48.070
			3 Rpld	10.38.120
			4 Rpld	10.48.110

LONG BEACH, CALIFORNIA

MUNICIPAL CODE

VOLUME III

A Republication of the General Ordinances of Long Beach, California

---

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

VOLUME III

Title 21

ZONING*

Chapter 21.10 General Provisions

21.10.010 Title.
21.10.020 Purpose.
21.10.030 Scope.
21.10.040 Minimum requirements.
21.10.045 Interpretation of the Ordinance.
21.10.047 Granting of minor modification.
21.10.050 Relationship to other ordinances and laws.
21.10.060 Applicability and effect of prior permits.
21.10.070 Building site required.
21.10.080 Penalty for violation.
21.10.090 Continuous application of Zoning Regulations.

Chapter 21.11 No Net Loss

21.11.010 Purpose and Intent.
21.11.020 Definitions.
21.11.030 Applicability.
21.11.040 Exemptions.
21.11.050 Requirements.
21.11.060 Approvals.

Chapter 21.15 Definitions

21.15.010 Purpose.
21.15.020 Rules of Construction.

***Note**—Prior history: Prior code §§ 9120, 9200 and 9210; Ords. C-5310, C-5312, C-5313, C-5333, C-5346, C-5349, C-5360, C-5367, C-5389, C-5421, C-5433, C-5487, C-5520, C-5521, C-5526, C-5559, C-5573, C-5581, C-5583, C-5611, C-5612, C-5616, C-5636, C-5639, C-5680, C-5687, C-5688, C-5716, C-5735, C-5737, C-5740, C-5759, C-5760, C-5761, C-5803, C-5823, C-5827, C-5830, C-5901, C-5903, C-5913, C-5919, C-5935, C-5939, C-5955, C-5957, C-5958, C-5975, C-5984, C-5986, C-5988, C-5989, C-5990, C-5992, C-5994, C-5995, C-5999, C-6011, C-6019, C-6027, C-6029, C-6030, C-6039, C-6045, C-6053, C-6054, C-6059, C-6061, C-6080, C-6087, C-6094, C-6097, C-6098, C-6109, C-6131, C-6134, C-6145, C-6152, C-6164, C-6167, C-6192, C-6201, C-6207, C-6220, C-6221, C-6222, C-6232, C-6233, C-6234, C-6244, C-6261, C-6262, C-6267, C-6270, C-6275, C-6281, C-6287, C-6296, C-6315, C-6338, C-6342, C-6352, C-6361, C-6369, C-6371, C-6375, C-6386, C-6414, C-6423, C-6429, C-6434, C-6450, C-6456, C-6464, C-6476, C-6501, C-6512 and C-6515.

21.15.025 Terms not defined.
21.15.030 Abandoned.
21.15.040 Abut.
21.15.045 Accessory dwelling unit.
21.15.050 Accessory building, accessory structure.
21.15.055 Accessory tasting room.
21.15.060 Accessory use.
21.15.063 Accessory use, residential.
21.15.064 Acutely Hazardous Material.
21.15.064.5 Adaptive reuse.
21.15.065 Addition.
21.15.070 Adjacent.
21.15.080 Adjoining.
21.15.090 Adjusted earnings.
21.15.100 Administrative service.
21.15.110 Adult entertainment business.
21.15.113 Adult-Use Cannabis Dispensary.
21.15.114 Adult-use cannabis delivery-only dispensary.
21.15.120 Aggrieved person.
21.15.130 Airport or aircraft landing field.
21.15.135 Alcoholic beverage manufacturing.
21.15.140 Alley.
21.15.150 Alteration.
21.15.160 Amortize, amortization.
21.15.165 Amusement/entertainment facilities.
21.15.170 Amusement machine.
21.15.180 Amusement park.
21.15.190 Amusement ride.
21.15.195 Animal boarding.
21.15.196 Animal daycare.
21.15.197 Animal lounge.
21.15.200 Antique shop.
21.15.205 Apartment.
21.15.210 Appealable area.
21.15.220 Arcade.
21.15.230 Architectural protrusion.
21.15.235 Area median income.
21.15.240 Artist studio.

21.15.245 Assembly use.
21.15.250 Attached.
21.15.260 Attic.
21.15.270 Auto detailing.
21.15.280 Auto repair, major.
21.15.290 Auto repair, minor.
21.15.300 Automobile service station.
21.15.310 Automobile wrecking.
21.15.320 Awning.
21.15.330 Balcony.
21.15.335 Bank.
21.15.340 Basement.
21.15.350 Bay window.
21.15.360 Bed and Breakfast Inn.
21.15.365 Bicycle parking space.
21.15.370 Billboard.
21.15.372 Billboard, abandoned.
21.15.374 Billboard, electronic.
21.15.380 Board and Care Home.
21.15.390 Boardinghouse.
21.15.400 Body or Hearing Body.
21.15.410 Building.
21.15.420 Building Code.
21.15.430 Building Coverage.
21.15.440 Business Support Service.
21.15.441.1 Cannabis cultivation.
21.15.441.2 Cannabis manufacturing/processing.
21.15.441.3 Cannabis distribution.
21.15.441.4 Cannabis testing.
21.15.441.5 Cannabis distributor, self-distribution.
21.15.442 Car title loans.
21.15.445 Caretaker residence.
21.15.447 Carport.
21.15.450 Categorical Exclusion.
21.15.460 Certificate of Occupancy.
21.15.470 Chattel.
21.15.475 Check cashing.
21.15.480 Child care—Large family daycare home.

21.15.490 Child care—Small family daycare home.
21.15.500 Chimney.
21.15.510 Reserved.
21.15.520 Clinic, medical.
21.15.530 Coastal zone.
21.15.540 Coastally dependent.
21.15.550 Code.
21.15.555 Collectibles.
21.15.560 Commercial.
21.15.562 Commercial loans.
21.15.565 Commercial recreation.
21.15.570 Commercial storage/self-storage.
21.15.575 Commissary.
21.15.580 Commission.
21.15.590 Communal housing.
21.15.595 Community assembly.
21.15.600 Community care facility.
21.15.602 Community correctional reentry center.
21.15.605 Community garden.
21.15.607 Computer arcade.
21.15.610 Computer program consulting service.
21.15.615 Concession (density bonus).
21.15.620 Conditional use.
21.15.630 Conditional use permit.
21.15.635 Consumer loans.
21.15.640 Convalescent hospital.
21.15.650 Conversion.
21.15.660 Corner cutoff.
21.15.670 Corner lot.
21.15.680 Corral.
21.15.690 Corrosive.
21.15.700 Courtesy parking.
21.15.705 Courtyard.
21.15.707 Cultural facility.
21.15.710 Curb level.
21.15.720 Daycare center.
21.15.730 Day nursery, preschool or nursery school.
21.15.740 Deck.

21.15.750 Demolish.
21.15.760 Density.
21.15.765 Density, Base.
21.15.770 Density Transfer.
21.15.772 Density Bonus.
21.15.774 Density bonus unit.
21.15.780 Detached building.
21.15.790 Development.
21.15.800 Development agreement.
21.15.810 Development rights.
21.15.812 Development standard.
21.15.813 Development standards waiver (density bonus).
21.15.820 Disposal.
21.15.830 Disposal site.
21.15.840 District, zoning.
21.15.850 Double-frontage lot.
21.15.860 Double zero side yard.
21.15.870 Drive-in restaurant.
21.15.875 Drive-through facilities.
21.15.880 Driveway.
21.15.890 Duplex (two-family dwelling).
21.15.900 Dwelling.
21.15.910 Dwelling unit.
21.15.915 Dwelling unit, accessory.
21.15.920 Dwelling, multiple-family.
21.15.930 Dwelling, one-family.
21.15.935 Dwelling, primary.
21.15.940 Easement.
21.15.950 Educational institution.
21.15.960 Electrical distribution substation.
21.15.962 Electrical generating station.
21.15.964 Electronic or video game.
21.15.966 Emergency shelter.
21.15.970 Entertainment service.
21.15.980 Equipment.
21.15.990 Equipment, garden.
21.15.993 Event center.
21.15.995 Exterior remodeling.

21.15.1000 Facing.
21.15.1010 Family.
21.15.1020 Fast-food restaurant.
21.15.1030 Feasible.
21.15.1040 Fence height.
21.15.1050 Financial service.
21.15.1054 Fitness Facility.
21.15.1055 Fixed bar.
21.15.1060 Flammable.
21.15.1065 Fleet service/company vehicle operations.
21.15.1070 Floor area, gross (GFA).
21.15.1090 Floor area ratio.
21.15.1100 Fortunetelling.
21.15.1110 Foster family home.
21.15.1120 Fourplex (four-family dwelling).
21.15.1130 Fraternity house or sorority house.
21.15.1140 Frontage.
21.15.1150 Front lot line.
21.15.1160 Front yard, required.
21.15.1170 Garage.
21.15.1180 General Plan.
21.15.1190 Grade.
21.15.1200 Group home.
21.15.1205 Guardrail.
21.15.1210 Guest parking.
21.15.1220 Guestroom.
21.15.1230 Halfway house.
21.15.1240 Handicapped housing.
21.15.1250 Hazardous material.
21.15.1260 Hazardous waste.
21.15.1270 Hazardous waste area.
21.15.1280 Hazardous waste facility.
21.15.1290 Hazardous waste facility, off-site.
21.15.1300 Hazardous waste facility, on-site.
21.15.1310 Hazardous waste producer.
21.15.1320 Hedge.
21.15.1330 Height of building.
21.15.1335 Height to midpoint of sloped roof.

21.15.1338 High crime.
21.15.1340 Highway.
21.15.1350 Home occupation.
21.15.1360 Horse.
21.15.1370 Hospital.
21.15.1380 Hotel.
21.15.1390 Household income levels.
21.15.1395 Household pet.
21.15.1400 Housing Authority.
21.15.1410—21.15.1430 Reserved.
21.15.1440 Illumination, indirect.
21.15.1448 Incentive (density bonus).
21.15.1450 Incentive zoning.
21.15.1452 Inclusionary housing project.
21.15.1454 Inclusionary housing unit.
21.15.1460 Industrial.
21.15.1465 Inn.
21.15.1470 Institutional use.
21.15.1475 Interim housing.
21.15.1480 Interior lot.
21.15.1490 Irritant.
21.15.1500 Junk.
21.15.1510 Junk or salvage yard.
21.15.1520 Kennel.
21.15.1530 Key lot.
21.15.1540 Kitchen.
21.15.1550 Landscaping.
21.15.1555 Landscaping plan.
21.15.1560 Laundry.
21.15.1570 Laundry, industrial.
21.15.1575 Liquor store.
21.15.1576 Live-Work unit.
21.15.1578 Loading space.
21.15.1580 Lodginghouse.
21.15.1590 Lot.
21.15.1600 Lot area.
21.15.1610 Lot, corner.
21.15.1620 Lot coverage.

21.15.1630 Lot depth.
21.15.1640 Lot, interior.
21.15.1650 Lot, key.
21.15.1660 Lot line, front.
21.15.1670 Lot line, rear.
21.15.1680 Lot line, side.
21.15.1690 Lot, reversed corner.
21.15.1700 Lot, through.
21.15.1710 Lot width.
21.15.1720 Manufactured housing.
21.15.1725 Massage establishment.
21.15.1730 Median income.
21.15.1740 Medical office.
21.15.1750 Merchandise mall.
21.15.1755 Mezzanine.
21.15.1755.5 Microenterprise Home Kitchen Operation (MEHKO).
21.15.1756 Micro-Unit.
21.15.1760 Mixed use.
21.15.1764 Mobile food facility.
21.15.1765 Mobile Food Truck.
21.15.1770 Mobile home.
21.15.1780 Mobile home park.
21.15.1790 Modular housing.
21.15.1792 Money orders.
21.15.1793 Money transfers.
21.15.1795 Mortgage brokers.
21.15.1797 Mortuaries, Cremation and Interment Services.
21.15.1800 Motel.
21.15.1810 Motor vehicle.
21.15.1820 Motorcycle.
21.15.1830 Municipal Code.
21.15.1835 Mural.
21.15.1840 Natural grade.
21.15.1850 New Construction.
21.15.1855 Nightclub.
21.15.1859 Noise ordinance.
21.15.1860 Nonconformity.
21.15.1870 Nuisance.

21.15.1880 Nursing home.
21.15.1890 Office.
21.15.1900 Open corridor.
21.15.1910 Open space, usable.
21.15.1920 Outdoor advertising.
21.15.1930 Overlay zone.
21.15.1940 Owner of property.
21.15.1950 Owner's authorized agent.
21.15.1960 Parcel.
21.15.1970 Parking.
21.15.1980 Parking service.
21.15.1990 Parking space.
21.15.2000 Parking structure.
21.15.2005 Parsonage.
21.15.2007 Passive park.
21.15.2008 Pawn shop.
21.15.2009 Pay day loans.
21.15.2010 Permitted use.
21.15.2020 Personal service.
21.15.2030 Pet, household.
21.15.2040 Pet shop.
21.15.2050 Planning Commission.
21.15.2060 Planning Officer.
21.15.2070 Plat.
21.15.2075 Playground.
21.15.2080 Plot.
21.15.2090 Plot plan.
21.15.2100 Plumbing facilities.
21.15.2110 Police power.
21.15.2120 Poolhall.
21.15.2130 Porch.
21.15.2140 Port-related.
21.15.2150 Porte cochere.
21.15.2160 Premises.
21.15.2165 Primary dwelling.
21.15.2170 Principal use.
21.15.2180 Private club.
21.15.2190 Professional service.

21.15.2195 Public Library
21.15.2200 Public utility service yard.
21.15.2210 Public works project.
21.15.2215 Publicly accessible exterior telephones.
21.15.2220 Railroad yard.
21.15.2225 Realtor.
21.15.2230 Rear lot line.
21.15.2240 Rear yard, required.
21.15.2250 Rebuild.
21.15.2260 Recreation, commercial.
21.15.2265 Recreational park.
21.15.2270 Recreational vehicle.
21.15.2273 Religious assembly.
21.15.2275 Remodel.
21.15.2280 Residential.
21.15.2290 Residential care facility.
21.15.2300 Resource recovery.
21.15.2310 Restaurant.
21.15.2320 Restaurant, dinner.
21.15.2330 Restaurant, fast-food.
21.15.2332 Restaurant, ready-to-eat food.
21.15.2340 Retail sales.
21.15.2350 Reversed corner lot.
21.15.2360 Room.
21.15.2370 Room, primary.
21.15.2380 Room, secondary.
21.15.2382 Safe parking site.
21.15.2385 Sandwiched lot.
21.15.2390 School.
21.15.2395 School, publicly run post-secondary.
21.15.2400 Secondary housing unit.
21.15.2401 Reserved.
21.15.2410 Single-family dwelling.
21.15.2420 Secondhand store.
21.15.2430 Senior citizen housing.
21.15.2435 Senior citizen housing, active.
21.15.2440 Senior citizen housing, congregate care.
21.15.2450 Service station.

21.15.2460 Service yard.
21.15.2470 Setback line.
21.15.2475 Reserved.
21.15.2480 Shopping center.
21.15.2482 Shopping center, neighborhood.
21.15.2484 Shopping center, retail cluster.
21.15.2486 Shopping center, regional.
21.15.2487 Short-term rental.
21.15.2488 Side-by-side residential units.
21.15.2490 Side lot line.
21.15.2500 Side yard, required.
21.15.2510 Sign.
21.15.2520 Sign, abandoned.
21.15.2530 Sign area.
21.15.2540 Reserved.
21.15.2550 Sign, awning.
21.15.2560 Reserved.
21.15.2570 Sign, banner.
21.15.2570.5 Sign, building identification.
21.15.2571 Sign, changeable copy.
21.15.2573 Sign, residential neighborhood or commercial district identification.
21.15.2575 Sign, cabinet.
21.15.2577 Sign, electronic message center.
21.15.2580 Sign, freestanding.
21.15.2590 Sign, freeway-oriented.
21.15.2595 Sign, interior.
21.15.2600 Sign, marquee/canopy.
21.15.2610 Sign, menu board.
21.15.2620 Sign, monument.
21.15.2630 Sign, neighborhood marker.
21.15.2640 Reserved.
21.15.2650 Sign, off-premises.
21.15.2660 Sign, on-premises.
21.15.2665 Sign, on-site directional.
21.15.2667 Single Room Occupancy (SRO).
21.15.2670 Reserved.
21.15.2680 Reserved.
21.15.2690 Reserved.

21.15.2700 Sign, portable.
21.15.2710 Sign, projecting.
21.15.2720 Sign, promotional activity - commercial.
21.15.2721 Sign, promotional activity - noncommercial.
21.15.2723 Sign, push-through.
21.15.2725 Reserved.
21.15.2730 Sign, roof.
21.15.2740 Sign, temporary.
21.15.2743 Sign, through-the-face.
21.15.2745 Sign, traffic directional.
21.15.2750 Sign, wall.
21.15.2755 Sign, wall painted.
21.15.2760 Sign, window.
21.15.2770 Signable area.
21.15.2780 Site plan.
21.15.2790 Soaking pool.
21.15.2793 Social service facility.
21.15.2795 Social service office.
21.15.2800 Solid fence.
21.15.2810 Special group residence.
21.15.2820 Special setback line.
21.15.2830 Stable, private.
21.15.2840 Stable, commercial.
21.15.2850 Stall, box.
21.15.2860 Stall, tie.
21.15.2870 Standards or development standards.
21.15.2880 Standard State Zoning Enabling Act (SZEA).
21.15.2890 Standards variance.
21.15.2900 Street.
21.15.2910 Street furniture.
21.15.2920 Storage.
21.15.2930 Storage, hazardous waste.
21.15.2940 Story.
21.15.2950 Strong oxidizer.
21.15.2960 Strong sensitizer.
21.15.2970 Structure.
21.15.2980 Supergraphics.
21.15.2985 Supportive housing.

21.15.2987 Target population.
21.15.2990 Tattoo parlor.
21.15.3000 Tavern.
21.15.3005 Temporary activating uses.
21.15.3010 Therapy pool.
21.15.3015 Thrift shop.
21.15.3020 Through lot or double frontage lot.
21.15.3030 Tire retreading establishment.
21.15.3040 Tire store.
21.15.3050 Title.
21.15.3060 Townhouse.
21.15.3070 Toxic.
21.15.3080 Transfer of development rights (TDR).
21.15.3090 Transfer station.
21.15.3095 Transitional housing.
21.15.3100 Travel trailer.
21.15.3110 Travel trailer park.
21.15.3120 Treatment.
21.15.3130 Treatment facility.
21.15.3140 Triplex, three-family dwelling.
21.15.3150 Truck yard.
21.15.3151 Tutoring center.
21.15.3153 Unattended Donation Box.
21.15.3155 Urban agriculture use.
21.15.3160 Usable open space.
21.15.3170 Usable open space, common.
21.15.3180 Usable open space, private.
21.15.3190 Use.
21.15.3200 Variance.
21.15.3205 Vehicle.
21.15.3210 Vehicle, dismantled.
21.15.3215 Vehicle, inoperative.
21.15.3220 Vehicle, wrecked.
21.15.3225 Vending cart.
21.15.3230 Vested right.
21.15.3240 Veterinary clinic.
21.15.3250 Veterinary use.
21.15.3260 Vocational school.

21.15.3265 Waiver, development standards (density bonus).
21.15.3270 Wall return.
21.15.3280 Wetbar.
21.15.3290 Window.
21.15.3300 Wholesale, industrial.
21.15.3310 Wing wall.
21.15.3320 Yard, required front.
21.15.3330 Yard, required rear.
21.15.3340 Yard, required side.
21.15.3350 Zero bedroom unit.
21.15.3360 Zero lot line.
21.15.3370 Zone or zone district.
21.15.3380 Zoning Administrator.
21.15.3390 Zoning amendment.
21.15.3400 Zoning map.
21.15.3410 Zoning Regulations or Zoning Ordinance.

Chapter 21.21 Administrative Procedures

Division I. Hearing Bodies

21.21.101 Hearings—General.
21.21.105 Hearing bodies.

Division II. Initiation of Procedures

21.21.201 Application.

Division III. Noticing of Hearings

21.21.302 Noticing requirements for hearings.
21.21.304 Content of notices.
21.21.306 Evidence of notice.

Division IV. Conduct of Hearings and Effect of Action

21.21.401 Purpose and right to comment.
21.21.402 Action by hearing body.
21.21.403 Permit denial—Reapplication.
21.21.404 Continuing jurisdiction.
21.21.405 Modification of permits.
21.21.406 Expiration.

Division V. Appeals

21.21.501 Authorization and jurisdiction.

21.21.502 Time to file appeal.
21.21.503 Form of filing.
21.21.504 Time for conducting hearing of appeals.
21.21.505 Findings on appeal.
21.21.506 Finality of appeals.
21.21.507 Appeals from Harbor Department environmental determinations.

Division VI. Revocations

21.21.601 Revocations.
21.21.605 Procedures for revocation.

Division VII. Fees

21.21.701 Fees.

Division VIII. Limitation of Actions

21.21.801 Exhaustion of administrative remedies.
21.21.805 Statute of limitations.

Chapter 21.25 Specific Procedures

Division I. Zone Changes and Zoning Regulation Amendments

21.25.101 Zone changes and zoning regulation amendments.
21.25.103 Proceedings.
21.25.106 Findings required.
21.25.108 Timely action.
21.25.109 Special requirements—Rezoning of mobile home parks.

Division II. Conditional Use Permits

21.25.201 Purpose.
21.25.203 Application.
21.25.205 Jurisdiction.
21.25.206 Required findings.
21.25.207 Timely action.
21.25.209 Waiver of required conditions.
21.25.211 Posting of conditions.
21.25.212 Annual reinspection.

Division III. Standards Variance

21.25.301 Purpose.
21.25.303 Applicability.
21.25.305 Jurisdiction.
21.25.306 Required findings.

21.25.309 Timely action.

Division IV. Administrative Use Permits

21.25.401 Purpose.
21.25.403 Application.
21.25.405 Jurisdiction.
21.25.407 Required findings.
21.25.409 Timely action.
21.25.412 Annual reinspection.

Division V. Site Plan Review

21.25.501 Purpose.
21.25.502 Applicability.
21.25.503 Jurisdiction.
21.25.504 Notice.
21.25.505 Conditions of approval.
21.25.506 Findings required.
21.25.507 Timely action.
21.25.508 Waiver of development standards.
21.25.509 Environmental review.

Division VI. Classification of Uses

21.25.601 Purpose and jurisdiction.
21.25.602 Application.
21.25.603 Noticing.
21.25.604 Findings required.
21.25.605 Timely action.
21.25.606 Summary of action.
21.25.607 Effective date of action.
21.25.608 Effect of determination.
21.25.609 Record of determination.

Division VII. Planned Development District and Specific Plan Procedures

21.25.701 Purpose.
21.25.703 Planned Development or Specific Plan adoption.
21.25.704 Establishment or amendment of Planned Development District or Specific Plan.
21.25.706 Availability of PD or Specific Plan ordinance or resolution.
21.25.708 Site plan review.

Division VIII. Special Setbacks

21.25.801 Purpose.

21.25.802 Effect.
21.25.803 Initiation.
21.25.804 Applicable procedures.
21.25.805 Action required.
21.25.806 Permitted structures.
21.25.807 Variance.
21.25.808 Exception for fences.

Division IX. Local Coastal Development Permits

21.25.901 Purpose.
21.25.902 Applicability.
21.25.903 Permit required.
21.25.904 Procedures—Coastal permit.
21.25.905 Administrative Land Use Review.
21.25.906 Procedures—Categorical exclusion.
21.25.908 Appealable area.

Division X. (Repealed)

Division XI. Determination of Applicable Law

21.25.1101 Purpose.
21.25.1103 Application.
21.25.1105 Timely action.
21.25.1108 Jurisdiction.
21.25.1110 Determination of applicable law.
21.25.1113 Findings required.
21.25.1115 Effectiveness and expiration.

Division XII. Interim Park Use Permit

21.25.1201 Purpose.
21.25.1203 Application.
21.25.1205 Jurisdiction.
21.25.1207 Required findings.
21.25.1209 Timely action.
21.25.1211 Waiver of required conditions.
21.25.1213 Posting of conditions.
21.25.1215 Annual reinspection.

Division XIII. Reasonable Accommodation

21.25.1301 Purpose.
21.25.1303 Definitions.

21.25.1305 Notice to the public of availability of accommodation process.
21.25.1307 Requesting reasonable accommodation.
21.25.1309 Jurisdiction.
21.25.1311 Required findings.
21.25.1313 Appeals.
21.25.1315 Reasonable accommodation relating to requests for increased occupancy of group homes.
21.25.1317 Fee.

Chapter 21.27 Nonconformities

21.27.010 Purpose.
21.27.020 Continuance of nonconforming rights.
21.27.030 Illegal uses or structures.
21.27.040 Maintenance.
21.27.050 Abandonment.
21.27.055 Modification.
21.27.060 Expansion.
21.27.065 Interior alteration to residential uses with nonconforming parking to create additional bedrooms.
21.27.070 Change in use.
21.27.080 Determination of nonconforming non-residential parking rights.
21.27.090 Restoration.
21.27.110 Special uses and structures.
21.27.130 Historic landmark and landmark district exemption.
21.27.150 Amortization—Adult entertainment.
21.27.160 Amortization—Fleet service/company vehicle operations.

Chapter 21.29 Development Agreements

21.29.010 Purpose and construction.
21.29.020 Application and processing.
21.29.030 Public hearings.
21.29.040 Content of development agreement.
21.29.050 Execution and recordation.
21.29.060 Environmental review.
21.29.070 Periodic review.
21.29.080 Effect of development agreement.
21.29.090 Approved development agreements.

Chapter 21.30 Districts Established

21.30.010 Districts designated.

21.30.020 Regulations for all districts.
21.30.030 Use district map adopted.
21.30.040 District boundary determination.
21.30.050 Zoning of annexed territory.
21.30.060 Reclaimed submerged lands.
21.30.070 Vacated street or alley.
21.30.080 Savings.

Chapter 21.31 Residential Districts

21.31.010 Purpose.
21.31.020 Districts established.
21.31.030 Site plan review.
21.31.040 Reclassification of district.

Division I. Permitted Uses

21.31.110 Permitted uses.
21.31.120 Prohibited uses.

Division II. Development Standards

21.31.201 General provisions.
21.31.205 Units per lot and lot area per unit.
21.31.210 Minimum lot area and lot width.
21.31.215 Yard requirements.
21.31.220 Height limits.
21.31.225 Lot coverage.
21.31.230 Usable open space.
21.31.235 Floor area ratio.
21.31.240 Privacy standards.
21.31.242 Minimum courtyard dimensions.
21.31.245 Accessory structures.
21.31.250 Pedestrian access.
21.31.255 Design, treatment and finish.
21.31.260 Reserved.
21.31.265 Mechanical equipment screening.
21.31.270 Utility meters screening.
21.31.275 Undergrounding of utilities.
21.31.280 Off-street parking and loading requirements.
21.31.285 Landscaping requirements.
21.31.290 Fences and garden walls.

21.31.295 On-premises signs.
21.31.299 Right-of-way dedications and improvements.

Division III. Planned Unit Developments

21.31.300 Residential Planned Unit Development (PUD) district established.
21.31.310 Purpose.
21.31.320 Procedures.
21.31.325 Modifications to a PUD.
21.31.330 Required Findings.
21.31.340 PUD Development Standards.
21.31.350 PUD Design Guidelines.
21.31.360 Additional Land Use Restrictions.

Chapter 21.32 Commercial Districts

21.32.010 Purpose.
21.32.020 Districts established.
21.32.030 Site plan review.
21.32.035 Adult entertainment business.
21.32.040 Reclassification of district.

Division I. Permitted Uses

21.32.110 Permitted uses.
21.32.120 Prohibited uses.
21.32.130 Transition between defunct and new commercial zones.

Division II. Development Standards

21.32.200 General provisions.
21.32.205 Lot size.
21.32.210 Building height.
21.32.220 Yards.
21.32.225 Screening required.
21.32.230 Design of buildings.
21.32.235 Residential uses in commercial districts.
21.32.245 Accessory structures.
21.32.250 Off-street parking and loading.
21.32.255 Landscaping requirements.
21.32.260 Fences and garden walls.
21.32.265 On-premises signs.
21.32.270 Right-of-way dedications and improvements.
21.32.275 Undergrounding of utilities.

Chapter 21.33 Industrial Districts

21.33.010 Purpose.
21.33.020 Districts established.
21.33.030 Fire Department preliminary review.
21.33.040 Site plan review.
21.33.045 Harbor Department review in IP district.
21.33.050 Adult entertainment businesses.

Division I. Permitted Uses

21.33.060 Permitted uses.
21.33.070 Prohibited uses.
21.33.080 Meaning of the Y/AP and Y/C designations.
21.33.090 Performance standards.

Division II. Development Standards

21.33.100 General provisions.
21.33.110 Minimum lot size.
21.33.120 Maximum lot coverage.
21.33.130 Maximum building and structure height.
21.33.140 Setbacks and yards.
21.33.145 Parking areas abutting streets.
21.33.150 Outdoor storage and activities.
21.33.160 Accessory structures.
21.33.170 Accessory office space in industrial buildings.
21.33.180 Rooftop equipment screening.
21.33.190 Off-street parking and loading.
21.33.200 Landscaping requirements.
21.33.210 Fences and garden walls.
21.33.220 On-premises signs.
21.33.230 Right-of-way dedications and improvements.

Chapter 21.34 Institutional District

21.34.010 Purpose.
21.34.020 Long range development plan required.
21.34.025 Site plan review.
21.34.030 Adult entertainment business.

Division I. Permitted Uses

21.34.110 Permitted uses.

21.34.120 Prohibited uses.

Division II. Development Standards

21.34.201 General provisions.
21.34.205 Lot size.
21.34.210 Building height.
21.34.215 Lot coverage.
21.34.220 Yards required.
21.34.225 Corner cutoffs.
21.34.230 Distance between principal use buildings.
21.34.235 Building design, treatment and finish.
21.34.240 Screening required.
21.34.245 Residential development.
21.34.250 Accessory structures.
21.34.255 Off-street parking and loading.
21.34.260 Landscaping requirements.
21.34.265 Fences and garden walls.
21.34.270 On-premises signs.
21.34.275 Right-of-way dedications and improvements.

Chapter 21.35 Park District

21.35.010 Purpose.
21.35.020 Site plan review required.
21.35.030 Adult entertainment business.

Division I. Permitted Uses

21.35.110 Purpose.
21.35.120 Prohibited uses.

Division II. Development Standards

21.35.205 General provisions.
21.35.210 Lot size.
21.35.215 Building height.
21.35.220 Site coverage.
21.35.225 Yards—Required.
21.35.230 Design of buildings.
21.35.235 Screening required.
21.35.240 Accessory structures.
21.35.245 On-premises signs.
21.35.250 Off-street parking and loading.

21.35.255 Landscaping requirements.
21.35.260 Fences and garden walls.

Chapter 21.36 Public Right-of-Way

21.36.010 Purpose.

Division I. Permitted Uses

21.36.110 Permitted uses.
21.36.120 Prohibited uses.

Division II. Development Standards

21.36.210 Development standards.

Chapter 21.37 Planned Development Districts and Specific Plans

Division I. Planned Development Districts

21.37.110 Purpose.
21.37.120 Districts established.
21.37.130 Qualifying standards.
21.37.140 Establishment procedures.
21.37.150 Development standards.
21.37.160 Site plan review.
21.37.170 Alcoholic beverage sales uses.
21.37.180 Use regulations—Amendments to Title 21.

Division II. Specific Plans

21.37.200 Purpose.
21.37.210 Specific Plans established.
21.37.220 Establishment procedures.
21.37.230 Development standards.
21.37.240 Use regulations—Amendments to Title 21.

Chapter 21.38 Horse Overlay District

21.38.010 Purpose.

Division I. Permitted Uses

21.38.110 Permitted uses.
21.38.120 Prohibited uses.

Division II. Development Standards

21.38.201 Number of horses permitted.
21.38.203 General.

21.38.205 Stalls required.
21.38.210 Permitted location.
21.38.215 Distance from residential units.
21.38.220 Distance from property line.
21.38.225 Distance from accessory structures.
21.38.230 Construction requirements—Stalls and stables.
21.38.235 Construction requirements—Corrals.
21.38.240 Parking requirements.
21.38.245 Landscaping.
21.38.250 Nonconforming stables and corrals.

Chapter 21.39 High-Rise Overlay District

21.39.010 Purpose.
21.39.020 Building height restrictions.
21.39.030 Applicable districts.

Division I. Permitted Uses

21.39.110 Permitted uses.

Division II. Development Standards

21.39.210 General provisions.
21.39.220 High-rise restrictions.
21.39.230 Residential use.

Chapter 21.40 Height Limit Overlay District (Hl)

21.40.010 Purpose.
21.40.020 Building height restrictions.

Division I. Permitted Uses

21.40.110 Permitted uses.

Division II. Development Standards

21.40.210 General provisions.
21.40.220 Lower height limits.

Chapter 21.41 Off-Street Parking and Loading Requirements

Division I. General Provisions

21.41.110 Purpose.
21.41.120 Applicability.
21.41.140 Building permit.
21.41.150 Maintenance.

21.41.160 New construction and uses.
21.41.165 Change of use for building more than ten years old.
21.41.170 Established uses.
21.41.175 Exemption from parking minimums.
21.41.180 Parking exempt area map adopted.
21.41.185 Exemption from loading minimums.
21.41.190 Driveway and curb cut replacement after parking removal.

Division II. Parking Regulations

21.41.206 Parking—Nonconforming.
21.41.209 Parking—Rental or sale of residential parking.
21.41.213 Parking—Garage required.
21.41.216 Parking—Required number of spaces.
21.41.219 Parking requirements for uses not specified and for large shopping centers.
21.41.221 On-site parking required—Residential uses.
21.41.222 Off-site parking.
21.41.223 Adjustment of parking requirements.
21.41.224 Parking district.
21.41.226 Special parking requirements for CNP district.
21.41.228 In lieu fees.
21.41.229 Parking—Residential uses in commercial zones.
21.41.231 Parking—Size of spaces.
21.41.232 Parking—Electric vehicle space and charging station requirements.
21.41.233 Tandem parking—Residential uses.
21.41.235 Tandem parking—Industrial/manufacturing uses and area D of the coastal zone (Second Street, between Livingston Drive and Bayshore Avenue).
21.41.239 Parking fee—Nonresidential use.
21.41.243 Parking lot layout.
21.41.246 Parking—Access.
21.41.249 Parking area improvements.
21.41.251 Driveways and curb cuts.
21.41.253 Parking areas—Curb cuts.
21.41.256 Reserved.
21.41.257 Reserved.
21.41.259 Parking areas—Lighting.
21.41.261 Parking areas—Markings.
21.41.263 Parking areas—Paving.
21.41.266 Parking areas—Screening.

21.41.269 Parking areas—Wheel stops.
21.41.273 Parking structures.
21.41.276 Recreational vehicle parking—Residential districts.
21.41.279 Recreational vehicle parking and storage—Nonresidential districts.
21.41.281 Vehicle parking in residential setbacks.
21.41.283 Parking and storage of inoperative, dismantled or wrecked vehicles—Residential districts.
21.41.286 Drive-up and drive-thru facilities.

Division III. Loading Regulations

21.41.310 Loading—Required.
21.41.315 Loading—Change of use.
21.41.320 Loading—Size of spaces.
21.41.330 Loading—Number of spaces.
21.41.340 Loading—Location.
21.41.345 Loading—Backing into street.
21.41.350 Loading—Turning radius.
21.41.360 Loading—Screening.
21.41.370 Loading docks.

Chapter 21.42 Landscaping Standards

21.42.010 Purpose.
21.42.020 Landscaping required.
21.42.030 General requirements.
21.42.035 Special requirements for Water Efficient Landscaping.
21.42.040 Landscaping standards for R-3, R-4 and Nonresidential Districts.
21.42.050 Landscaping standards—Public right-of-way (Parkway).
21.42.060 Model Water Efficient Landscaping Ordinance Requirements.

Chapter 21.43 Fences and Garden Walls

21.43.010 Permitted.
21.43.020 Height limits.
21.43.030 Prohibited fence and wall materials.

Chapter 21.44 On-Premises Signs

21.44.010 Purpose.
21.44.020 Accessory uses.
21.44.030 Sign permit required.
21.44.035 Discretionary processes.

21.44.050 General performance and development standards for all signs.
21.44.060 Design standards for all signs.
21.44.062 Additional design standards for nonresidential signs.
21.44.064 Additional design standards for residential signs.

Division I. Major Signs

21.44.100 Development Standards—Major signs.
21.44.102 Copy.
21.44.105 Standards by zoning districts.
21.44.120 Wall signs.
21.44.130 Projecting (blade) signs.
21.44.140 Freestanding/monument signs.
21.44.160 Awning (or marquee or canopy) signs.
21.44.170 Building identification signs (commercial and residential).

Division II. Special Major Signs

21.44.200 Development Standards—Special major signs.
21.44.210 Wall-painted signs.
21.44.220 Roof signs.
21.44.230 Changeable copy signs.
21.44.240 Residential neighborhood and commercial district identification signs.
21.44.250 Historic signs.

Division III. Minor Signs

21.44.300 Development standards—Minor signs.
21.44.310 Menu boards.
21.44.320 On-site directional signs.
21.44.330 Traffic directional signs.

Division IV. Temporary Signs

21.44.400 Temporary signs.
21.44.410 Promotional activity signs (banners).
21.44.420 Political signs.
21.44.430 Subdivision signs.

Division V. Permit Exempt Signs

21.44.500 Permit exempt signs.

Division VI. Prohibited Signs

21.44.600 Prohibited signs.

Division VII. Nonconforming, Abandoned and Illegal Signs and Other Provisions

21.44.710 Nonconforming signs.
21.44.720 Abandoned signs.
21.44.730 Illegal signs.
21.44.740 Administrative removal of signs.

Division VIII. Electronic Message Center Signs

21.44.800 Electronic message center signs.
21.44.810 Conditional Use Permit required.
21.44.820 Site requirements for electronic message center signs.
21.44.830 Number, location, spacing, form, and substitution/removal requirements.
21.44.835 Design standards.
21.44.840 Height, area, projection, and clearance requirements.
21.44.850 Brightness, display, copy, and message requirements.
21.44.855 Light and glare intrusion prevention.
21.44.860 Exemptions.
21.44.870 Nonconforming electronic message center signs.

Division IX. Signs on Public Property

21.44.900 Signs on public property.

Chapter 21.45 Special Development Standards

21.45.010 Purpose.
21.45.100 Special development standards.
21.45.110 Adult entertainment businesses.
21.45.114 Alcohol beverage manufacturing and accessory tasting rooms.
21.45.115 Reserved.
21.45.115.5 Amusement/entertainment facilities.
21.45.116 Check cashing, pay day loans, car title loans, signature loans and other financial services.
21.45.120 Commercial storage.
21.45.125 Commissary (standalone).
21.45.130 Drive-through facilities.
21.45.132 Emergency shelters.
21.45.133 Indoor animal adoption and boarding special development standards.
21.45.133.6 Mobile food truck or mobile food facility on private property.
21.45.134 Outdoor animal daycare special development standards.
21.45.135 Outdoor sale of flowers and newspapers.

21.45.140 Outdoor display for sale or rent (vehicles, equipment, garden supply, or building materials).
21.45.150 Outdoor service and repair of vehicles and equipment.
21.45.151 Publicly run post-secondary school.
21.45.153 Interim housing.
21.45.155 Interim passive parks.
21.45.157 Radio and television antennas.
21.45.160 Retail/office commercial uses and parking structures in the R-4-H Zone.
21.45.163 Safe parking site.
21.45.165 Swimming pools and spas.
21.45.166 Tattoo parlors.
21.45.167 Trash receptacles.
21.45.168 Truck terminal and truck yard facilities.
21.45.170 Vending carts.
21.45.300 Amortization of nonconforming open storage and uses.
21.45.400 Green building standards for public and private development.
21.45.500 Adaptive reuse projects.
21.45.600 Micro-Unit Projects.
21.45.700 Adult-use cannabis delivery-only dispensaries.

Chapter 21.47 Dedication, Reservation and Improvement of Public Rights-of-Way

21.47.010 Purpose.
21.47.020 Dedication and reservation.
21.47.030 Improvements.
21.47.040 Relief from requirements.

Chapter 21.50 Interim Prohibition of Uses

21.50.010 Purpose, intent and definitions.
21.50.020 Conditions for initiation.
21.50.030 Notification of action.
21.50.040 Adoption of interim ordinance.
21.50.050 Effect of interim ordinance in the coastal zone.

Chapter 21.51 Accessory Uses

21.51.010 Purpose.

Division I. Use Restrictions

21.51.110 Use restrictions.

Division II. Use Conditions

21.51.201 Accessory use conditions.
21.51.203 Active senior citizen housing.
21.51.205 Amusement machines and electronic video games.
21.51.210 Animals (household pets).
21.51.215 Banquet room rental.
21.51.220 Caretaker's or nightwatchman's residence.
21.51.225 Catering (food preparation).
21.51.225.5 Commissary to accessory to restaurant.
21.51.226 Computer cafe.
21.51.227 Home automobile repair.
21.51.230 Childcare—Small and large family daycare homes.
21.51.235 Home occupations.
21.51.237 Live nude art drawing.
21.51.240 Manufacture of products sold on-site (commercial zones).
21.51.243 Reserved.
21.51.255 Outdoor display for sale of flowers, plants, fruits, and vegetables.
21.51.260 Pool table.
21.51.265 Recycling containers.
21.51.270 Room rental.
21.51.275 Reserved.
21.51.276 Accessory Dwelling Units.
21.51.278 Safe parking site.
21.51.280 Shoe-shine parlor.
21.51.285 Solar collectors.
21.51.290 Storage of materials.
21.51.292 Towing.
21.51.294 Unattended Donation Box (UDB).
21.51.295 Vending machines.

Chapter 21.52 Conditional Uses

21.52.010 Purpose.
21.52.030 Massage establishments.

Division I. General Provisions

21.52.100 General provisions.

Division II. Special Conditions for Conditional and Administrative Use Permits

21.52.200 Conditional and administrative use development standards.

21.52.200.1 Alcohol exemption permit.
21.52.201 Alcoholic beverage sales uses.
21.52.203 Arcade.
21.52.204 Reserved.
21.52.206 Automobile related services.
21.52.208 Bank, credit union, savings and loan.
21.52.209 Bed and breakfast inn.
21.52.209.5 Caretakers' residence.
21.52.210 Reserved.
21.52.211 Cemeteries, mortuaries, and crematoriums.
21.52.212 Check cashing, pay day loans, car title loans, signature loans, and other financial services.
21.52.213 Reserved.
21.52.216 Collection center for recyclables.
21.52.219 Commercial parking lot or structure—Nonresidential districts.
21.52.219.5 Commercial recreation uses.
21.52.219.7 Commercial storage/self-storage.
21.52.219.7.5 Commissary (standalone).
21.52.219.8 Community assembly uses.
21.52.220 Community correctional reentry centers.
21.52.220.5 Computer arcade.
21.52.221 Courtesy parking in residential districts.
21.52.222 Diesel fuel sales.
21.52.223 Electrical distribution station—Residential districts.
21.52.226 Electrical distribution substations—Nonresidential districts.
21.52.229 Electronic message center signs.
21.52.231 Fast-food restaurants.
21.52.231.5 Fences in high crime districts.
21.52.232 Fitness or health club, dance or karate studio and the like.
21.52.233 Handicapped and traditional senior citizen housing.
21.52.234 Heliport or blimp port or helipads.
21.52.235 Hotels/motels.
21.52.236 Institutional and public assembly uses.
21.52.238 Interim housing.
21.52.240 Legalization of dwelling units.
21.52.240.5 Live-work unit.
21.52.241 Merchandise mall.
21.52.243 Mobile home park.

21.52.244 Subdivision of existing mobile home park.
21.52.246 Motorcycle/jet ski sales and repair.
21.52.247 Building design in the CNP zone.
21.52.249 Nursery schools, day nurseries, preschools, childcare centers, daycare centers and similar uses for daytime care and education of a limited number of persons.
21.52.251 Office uses in residential districts.
21.52.256 Outdoor sales events.
21.52.257 Parsonage.
21.52.259 Pistol or rifle range.
21.52.260 Interim Playgrounds, urban agriculture use, community gardens and recreational parks.
21.52.261 Police training academy.
21.52.263 Elementary and secondary schools.
21.52.265 Recycling collection center.
21.52.265.5 Residential historical landmarks.
21.52.266 Restaurant with alcoholic beverage sales.
21.52.269 Restaurant in the R-4-H district.
21.52.269.1 Safe parking site.
21.52.270 Sandwiched lot.
21.52.270.1 Secondhand shops.
21.52.271 Special group residence (board and care, convalescent home, half-way house, boardinghouse/lodginghouse, communal housing and the like).
21.52.273 Tattoo or fortunetelling services.
21.52.279 Through-block commercial.
21.52.280 Tutoring center.
21.52.281 Reserved.
21.52.283 Vehicle rental services.
21.52.286 Reserved.
21.52.410 Special conditions—Industrial uses.
21.52.610 Uses in the Park (P) district.

Chapter 21.53 Temporary Uses

21.53.010 Purpose.
21.53.100 Use regulations.
21.53.103 Construction trailer.
21.53.106 Mobile food truck or Mobile food facility at specified public parks.
21.53.109 Special events (carnival, fiesta, other outdoor exhibition or celebration) in residential, institutional and park zone districts.

21.53.113 Special events (carnivals, fairs, circuses, grand prix events, seasonal sales and the like) in commercial, industrial, public right-of-way and planned development zone districts.
21.53.115 Temporary activating uses.
21.53.116 Trailer in Port district.
21.53.119 Trailer for real estate sales or lease.
21.53.123 Trailer for temporary business office.

Chapter 21.54 Billboards

21.54.010 Purpose.
21.54.020 Definition of terms.
21.54.030 Consistency with the Outdoor Advertising Act.
21.54.040 Severability clause.

Division I. Use Regulations

21.54.110 Use regulations.
21.54.111 Conditional Use Permit required.
21.54.112 Development agreements.
21.54.113 Sponsorship or advertising on public property under Chapter 16.55.
21.54.114 Separate applications.
21.54.115 Required findings.
21.54.118 Locations allowed.
21.54.119 Restricted to certain street classification types.
21.54.120 Locations prohibited.
21.54.125 Types of billboards prohibited.
21.54.130 Landscaped segment relocation credits.
21.54.140 Conversion of non-electronic billboards to electronic.
21.54.150 Expansion of billboard area or addition of faces to existing billboards.
21.54.160 Citywide billboard capacity limited.
21.54.170 Nonconformity defined for purposes of removal requirements.

Division II. Development Standards

21.54.210 Maximum area.
21.54.220 Maximum height.
21.54.221 Maximum number of faces.
21.54.222 Face orientation.
21.54.223 Name of owner.
21.54.230 Spacing.
21.54.240 Supports.

21.54.250 Lighting.
21.54.260 Clearance.
21.54.265 Projection.
21.54.270 Screening.
21.54.280 Design and brightness restrictions.
21.54.285 Additional requirements.
21.54.290 Maintenance.

Division III. Abandoned and Illegal Billboards

21.54.310 Abandoned billboards.
21.54.320 Illegal billboards.

Division IV. Nonconforming Billboards

21.54.410 Amortization of nonconforming billboards.
21.54.420 Removal by amortization.
21.54.430 Continuation of use.
21.54.440 Repair.
21.54.450 Nonconforming billboards—Replacement.

Chapter 21.56 Wireless Telecommunications Facilities

21.56.010 Purpose and objectives.
21.56.020 Definitions.
21.56.030 Permit requirements for new Wireless Telecommunications Facilities.
21.56.040 Development and design standards for new Wireless Telecommunications Facilities that are not co-location facilities.
21.56.050 Application requirements for new Wireless Telecommunications Facilities that are not co-location facilities.
21.56.060 Entitlement, term, renewal and expiration.
21.56.070 Permit requirements for co-location facilities.
21.56.080 Development and design standards for co-location facilities.
21.56.090 Application requirements for co-location facilities.
21.56.100 Development and design standards for all Wireless Telecommunications Facilities and co-location facilities.
21.56.110 Performance standards for all Wireless Telecommunications Facilities and co-location facilities.
21.56.120 Additional requirements and standards for Wireless Telecommunications Facilities and co-location facilities in the coastal zone.
21.56.130 Additional requirements and standards for Wireless Telecommunications Facilities located in Park Zoning Districts.
21.56.140 Other provisions.

21.56.150 Severability clause.

Chapter 21.57 Alcohol Nuisance Abatement

21.57.010 [Title.]
21.57.020 Definitions.
21.57.030 Purpose.
21.57.040 Applicability.
21.57.050 Automatic Deemed Approved.
21.57.060 Performance Standards.
21.57.070 Administration and Enforcement.
21.57.080 Revocation of Deemed Approved Status.
21.57.090 Fee.

Chapter 21.60 Reserved

Chapter 21.61 Maintenance of Low Income Housing in the Coastal Zone

21.61.010 Purpose.
21.61.020 Definitions.
21.61.030 Applicability of this Chapter.
21.61.040 Administration.
21.61.050 Responsibility to provide housing.
21.61.060 Method of replacement.
21.61.070 In-lieu fees.
21.61.080 Conditions on replacement housing.
21.61.090 First option.

Chapter 21.62 Reserved

Chapter 21.63 Incentives for Affordable Housing

21.63.010 Purposes.
21.63.020 Qualification.
21.63.030 Limitation.
21.63.040 Procedures.
21.63.050 Development standards.
21.63.060 Maintenance of units.
21.63.070 Additional incentives.
21.63.080 Waiver of development standards.
21.63.090 Additional financial incentives.

Chapter 21.64 Transportation Demand and Trip Reduction Measures

21.64.010 Purpose and intent.
21.64.020 Definitions.
21.64.030 Transportation demand and trip reduction measures.

Chapter 21.65 Interim Motel/Hotel Conversions

21.65.010 Purpose.
21.65.020 Definitions.
21.65.030 Qualification.
21.65.040 Application and Approval.
21.65.050 Termination of Supportive Housing or Transitional Housing Agreement.
21.65.060 Compliance with applicable standards and zoning code requirements.
21.65.070 Performance standards.
21.65.080 Alternative Compliance.

Chapter 21.66 Unpermitted Dwelling Unit Amnesty Program

21.66.010 Purpose.
21.66.020 Compliance with applicable development standards and Zoning Code requirements.
21.66.030 Building Code Compliance.
21.66.040 Eligibility.
21.66.050 Affordability Covenant.
21.66.060 Review Process.
21.66.070 Appeals.

Chapter 21.67 Inclusionary Housing

21.67.010 Purpose.
21.67.020 Definitions.
21.67.030 Applicability.
21.67.040 Exemptions.
21.67.050 Inclusionary Housing Requirement.
21.67.060 Inclusionary Housing Standards and Incentives.
21.67.070 Timing of Construction of Inclusionary Units.
21.67.080 Developers' Alternative Compliance Options.
21.67.090 Application and Review Procedures.
21.67.100 Continued Affordability.
21.67.110 Housing Trust Fund.
21.67.120 Waiver.

21.67.130 Enforcement.

Chapter 21.68 Enhanced Density Bonus

21.68.010 Purpose.
21.68.020 Reserved.
21.68.030 Eligible parcels and qualifying housing development projects.
21.68.040 Procedures.
21.68.050 Density Bonus and concessions for affordable units.
21.68.060 Eligible concessions/incentives.
21.68.070 Waivers.
21.68.080 Special bonuses.
21.68.090 Parking requirements.
21.68.100 Sunset Clause.
21.68.110 Enforcement.

Chapter 21.69 Temporary Suspension of Certain Provisions of Title 21 During a Proclaimed Local Emergency Caused by Homelessness

21.69.010 Purpose.
21.69.020 Suspensions.
21.69.030 Improvements.
21.69.040 Expiration.

CHAPTER 21.10 GENERAL PROVISIONS

21.10.010 Title.

This Title of the Long Beach Municipal Code may be known and cited as the "Zoning Regulations of the City of Long Beach" or the "Zoning Regulations".

(Ord. C-6533 § 1 (part), 1988)

21.10.020 Purpose.

The purpose of the Zoning Regulations is to promote and preserve the public health, safety, comfort, convenience, prosperity and general welfare of the people of Long Beach. Specifically, the Zoning Regulations intend to achieve the following objectives:

A. To promote achievement of the proposals of the City General Plan;

B. To advance the City's position as a regional center of commerce, industry, tourism, recreation and culture;

C. To protect residential, commercial, industrial, public and institutional areas from the intrusion of incompatible land uses;

D. To provide for desirable, appropriately located living areas in a variety of dwelling types and at a wide range of population densities, with adequate provisions for sunlight, fresh air and usable open space;

E. To assure preservation of adequate space for commercial, industrial and other activities necessary for a healthy economy;

F. To promote safe, expeditious and efficient movement of people and goods, with a maximum of choice in modes of travel and with adequate provisions for parking, loading and the transfer of modes of travel;

G. To achieve excellence of design in all future developments and to preserve the natural beauty of the City's environmental setting;

H. To promote the growth and productivity of the City's economy;

I. To stabilize expectations regarding future development, thereby providing a basis for rational decisions;

J. To provide opportunities for establishments to be located for efficient operation in a mutually beneficial relationship to each other and to shared services;

K. To secure equity among individuals in the use of their property;

L. To distribute population growth in the City in such a way as to maximize the quality of life enjoyed by all persons who have an interest in Long Beach;

M. To guide and encourage the renewal of areas experiencing blight, deterioration and obsolescence, while protecting and preserving the City's cultural heritage; and

N. To locate and control land uses so that no noise, vibration, electrical disturbance, smoke, gaseous or particulate matter, odor, glare, heat, radioactivity, biological material, dust, nor hazard is generated, created or emitted from any use so as to be a substantial risk to public health, safety and welfare or to be of such an extent, intensity or duration as to be a nuisance to or adversely affect adjacent properties or uses.

(Ord. C-6533 § 1 (part), 1988)

21.10.030 Scope.

To the extent provided by State or Federal law or regulation, the Zoning Regulations shall apply to all development including development by the City of Long Beach or use of property within the City, whether public or private, tidal or submerged, except the following excluded properties:

A. **Roadways.** When dedicated as public freeways, streets or alleys, the Zoning Regulations shall only apply to issues of dedications, improvements, reservations, signage, parkway landscaping, street trees and curb cut locations. However, in the Coastal Zone, any development or other public works project in public rights-of-way shall be subject to the local coastal development permit requirements and procedures in Division IX of Chapter 21.25;

B. **Oil, Gas and Water.** When properties are used for oil extraction or gas extraction and processing and for City water wells, and when such uses are regulated by other provisions of the Municipal Code. However, in the Coastal Zone, all development, including drilling, new operating permits, new natural gas processing plants, drilling area changes or special condition variances, shall be subject to the local coastal development permit requirements and procedures in Division IX of Chapter 21.25;

C. **Public Utility Transmission, Distribution and Transit Lines.** When locating and using such lines only, and not when land, air rights or mineral rights are being utilized for other than transmission, distribution or transit purposes. However, in the Coastal Zone, all development shall be subject to the local coastal development permit requirements and procedures in Division IX of Chapter 21.25;

D. **Submerged Properties.** When properties are submerged, only the local coastal development permit requirements and procedures in Division IX of Chapter 21.25 shall apply, and these shall apply outside the jurisdiction of the certified Port of Long Beach Master Plan and implementing procedures.

(Ord. C-7326 § 1, 1995: Ord. C-7032 § 1, 1992; Ord. C-6533 § 1 (part), 1988)

21.10.040 Minimum requirements.

The Zoning Regulations shall be deemed the minimum requirements to promote and preserve the health, safety, prosperity and general welfare of the people.

(Ord. C-6533 § 1 (part), 1988)

21.10.045 Interpretation of the Ordinance.

If uncertainty arises concerning the content or application of the Zoning Ordinance and its standards, the Zoning Administrator shall be authorized to determine all pertinent facts and interpret the Ordinance. Alternatively, the Zoning Administrator may request the Planning Commission to make such interpretation. In no instance, however, shall the Zoning Administrator determine, nor shall these regulations be so interpreted, that a use shall be permitted in a zone when such use is specifically listed as permissible in another zone. The classification of use procedure, which is set forth in Division VI of Chapter 21.25 of this Title, shall be utilized to resolve such discrepancies.

(Ord. C-7326 § 30, 1995)

21.10.047 Granting of minor modification.

Except for any development in the Coastal Zone, whenever there are practical difficulties involved in carrying out the strict provisions of this Title, the Zoning Administrator may grant minor modifications in individual cases, provided the Zoning Administrator can make a finding that a special reason or circumstance makes the strict application of this Title impractical, and that the minor modification is in conformity with the spirit and purpose of this Title.

If the Zoning Administrator determines the request is not minor in nature, then the procedures set forth in Chapter 21.25 shall be pursued to obtain a Standards Variance Permit. Each minor modification application shall be submitted together with a filing fee equal to that of a zoning confirmation letter.

This Section shall not be used to grant modifications to cases located within the Coastal Zone.

(Ord. C-7395 § 1, 1996: Ord. C-7378 § 21, 1995)

21.10.050 Relationship to other ordinances and laws.

Any ordinance amending this Title is not intended to repeal, annul, abrogate, impair or interfere with existing provisions of any other ordinance or law. However, where the provisions of this Title impose greater restrictions than those required by other ordinances or laws, the provisions of this Title shall control.

(Ord. C-6533 § 1 (part), 1988)

21.10.060 Applicability and effect of prior permits.

A. Except as provided in Division XI of Chapter 21.25 of this Title, the provisions of this Title shall apply to the erection or alteration of any building or structure, or to the use of any parcel of land, on and after the effective date of the Ordinance codified in this Title and any subsequently adopted ordinance amending this Title, unless a building permit has been lawfully issued by the City for the construction of a project, in which case that project may be completed under the provisions of this Title as they existed at the time of issuance of the building permit; provided, that construction under the permit must be commenced within six (6) months of issuance of the

permit. For the purpose of this Subsection 21.10.060.A, a foundation permit shall be treated as equivalent to a building permit but grading, demolition, electrical, mechanical or plumbing permits shall not be considered or treated as building permits.

B. No official or employee of the City authorized to issue permits or licenses shall issue such permits or licenses not in conformity with the provisions of this Title where such conformity is required by law. Any permit or license issued in conflict with the provisions of this Title shall be null and void. Unless otherwise excepted, no premises shall be occupied or used and no building shall hereafter be erected, altered, used or occupied until certified by the Director of Planning and Building or his authorized designee to be in compliance with the provisions of this Title.

C. Whenever any building or sign permit, conditional use permit, variance or special zoning approval has been issued prior to the effective date of the Zoning Regulations or any amendment thereto and the uses or improvements for which the permit was issued would not conform to the regulations or amendments, the uses or improvements may, nevertheless, be utilized or developed to the extent authorized by the issued permit, provided the permit has not expired under the terms of its issuance. The uses and improvements shall be deemed legally nonconforming and shall be subject to the provisions of this Title governing nonconformities.

D. Whenever construction of a building has begun under a valid building permit and the regulations are later changed, construction may continue as long as the building permit remains valid. However, if construction is discontinued for any reason, except as provided in Section 21.27.090, and the building permit lapses, terminates or is otherwise or in any way voided, then all construction authorized under any new or subsequent building or other permit must conform to the regulations in effect at the time the new or subsequent permit is issued.

(Ord. C-7663 § 1, 1999; Ord. C-6684 § 10, 1990; Ord. C-6546 § 1, 1988; Ord. C-6533 § 1 (part), 1988)

21.10.070 Building site required.

No building or structure shall be erected or moved onto any parcel of land in the City except on a lot of record as shown on the section maps of the City, a lot certified as created in compliance with the Subdivision Map Act and local subdivision regulations, or a lot created as a result of public taking. No building or structure shall be altered or enlarged to increase the gross floor area by more than fifty percent (50%) within any one (1) year period except on a legal building site.

(Ord. C-6533 § 1 (part), 1988)

21.10.080 Penalty for violation.

A. Any violation of the Zoning Regulations, including maintaining property in violation of this Title, is a misdemeanor and upon conviction is punishable by a fine of not more than five hundred dollars ($500.00) or by imprisonment for a period of not more than six (6) months, or by both such fine and imprisonment. The existence of such a violation for each and every day after the notice of a violation has been served shall be considered a separate and distinct offense. The City Prosecutor shall prosecute all persons guilty of such violations by continuous prosecutions, if necessary, until the violation is abated or removed.

B. Upon discovery of a violation, the Department of Planning and Building shall issue a notice of violation to the owner of the subject property. The owner shall correct the violation, or take reasonable action to begin correction, and shall diligently pursue completion of the correction within ten (10) days after receiving notification of the violation. The Department of Planning and Building shall notify the City Prosecutor of any failure to correct the violation and shall request the City Prosecutor to take appropriate legal action. A repetitive or episodic violation of the same regulation shall be deemed a failure to correct and the Department of Planning and Building shall notify the City Prosecutor of the failure to correct.

C. Any violation of the Zoning Regulations within the Long Beach Coastal Zone shall also constitute a violation of Division 20, Section 30000 et seq., of the Public Resources Code of the State of California and shall be subject to the remedies, fines and penalties provided in Division 20, Chapter 9, Section 30800 et seq., of the Public Resources Code. However, this provision shall not preclude any enforcement under the provisions of the Municipal Code.

D. All cost incurred by the City in connection with such abatement of any violation of this Title, once notified, shall become an indebtedness of the owner(s) of said structure or premises, as well as a lien upon the affected property. Any person aggrieved by the imposition of costs pursuant to this Subsection may appeal such imposition within fifteen (15) days of the date of a notice to pay in accordance with procedures as set forth in Section 8.56.120 of this Code.

(Ord. C-6895 § 1, 1991; Ord. C-6595 § 5, 1989; Ord. C-6591 § 1, 1989; Ord. C-6533 § 1 (part), 1988)

21.10.090 Continuous application of Zoning Regulations.

A. Any violation of the Zoning Regulations is a public nuisance, punishable as a misdemeanor, and each day of continuing violation shall be deemed a separate offense. The City may undertake enforcement action after discovery of the violation regardless of when the violation actually occurred.

B. Pursuant to Civil Code Section 3483, every successive owner of property who fails or neglects to correct a violation or to abate a continuing nuisance upon or in the use of such property, created by a former owner, is liable criminally and civilly in the same manner as the one who first created it.

(Ord. C-6595 § 20, 1989)

CHAPTER 21.11 NO NET LOSS

21.11.010 Purpose and Intent.

The purpose of this Chapter is to implement California Senate Bill 330 (SB 330), the "Housing Crisis Act of 2019," as codified in Government Code Section 66300 to insure that the City does not approve a Housing Development Project, as defined herein, that would have the effect of reducing the zoned capacity for housing of the City as it existed on January 1, 2018; or which would result in the demolition of existing housing units unless those units are replaced on at least a one (1) to one (1) ratio; and in the case of exiting low income units, that such units are only demolished if they are replaced, and that

certain conditions related to affordability and tenant protections are met. It is the express intent of the City Council that this Chapter remain effective despite the possible expiration of Government Code Section 66300.

(ORD-22-0005 § 1, 2022; ORD-21-0007 § 1, 2021)

21.11.020 Definitions.

The following words or phrases shall have the following meanings when used in this Chapter:

A. "Department" means the Department of Development Services.

B. "Development Policy, standard or condition" means any of the following:

1. A provision of, or amendment to, the City's General Plan.

2. A provision of, or amendment to, a specific plan.

3. A provision of, or amendment to, a zoning ordinance.

4. A subdivision standard or criterion.

C. "Housing Development Project" means a use consisting of residential units only; mixed use developments consisting of residential and non-residential uses with at least two-thirds of the square footage designated for residential use; or transitional or supportive housing projects, or the demolition of any of the foregoing (see California Government Code Section 65589.5).

(ORD-22-0005 § 1, 2022; ORD-21-0007 § 1, 2021)

21.11.030 Applicability.

Except as otherwise specified in this Chapter, the provisions of this Chapter, apply to any of the following Housing Development Projects that submit development applications to the City after January 1, 2021:

A. New construction of any principal residential building;

B. A change of a principal residential use to another principal use;

C. A change in the number of dwelling units;

D. A land division subject to Title 20 (Subdivisions) of the Long Beach Municipal Code; or

E. Legalization of an existing unpermitted dwelling unit;

F. Demolition of an unpermitted or otherwise illegal dwelling unit that could otherwise be converted into a legal dwelling unit in accordance with applicable provisions of the City's zoning or building regulations.

(ORD-22-0005 § 1, 2022; ORD-21-0007 § 1, 2021)

21.11.040 Exemptions.

The following are exempt from the requirements of this Chapter:

A. New construction of a single-family residence on a lot with no other principal uses or structures;

B. New construction or legalization of accessory dwelling units or junior accessory dwelling units;

C. Conversion to resident ownership of all rented spaces in a mobilehome park;

D. Addition of mobilehome spaces or mobilehomes in a mobilehome park;

E. A lease project wherein two or more residential or commercial buildings are constructed and maintained on a parcel of land, and apartments, offices, stores or similar space are leased within one or more of the buildings, overall control of the land and buildings comprising the project being retained by the lessor.

(ORD-22-0005 § 1, 2022; ORD-21-0007 § 1, 2021)

21.11.050 Requirements.

A. Dwelling units that are proposed to be or have been demolished, vacated, or converted from rental to "for-sale," shall be replaced if they are permitted in the zone and are or were any of the following:

1. Subject to a recorded covenant that restricts rents to levels affordable to persons and families of moderate, lower, very low or extremely low income within the five years prior to application submittal;

2. Occupied by lower, very low or extremely low income tenants within the five years prior to application submittal;

3 Withdrawn from rent or lease in accordance with Chapter 12.75 (commencing with Section 7060) of the California Government Code within the ten (10) years prior to application submittal.

B. The number and type of affordable replacement units shall be determined as follows:

1. The number of affordable replacement units for lower or very low income households shall be determined in accordance with Section 65915 of the California Government Code, or any successor statute;

2. Affordable replacement units for lower or very low income households shall be provided at the level of affordability determined in accordance with Section 65915 of the California Government Code, or any successor statute;

3. Affordable replacement units for extremely low income households shall be provided in at least the same number as existed on the site within the five years prior to application submittal, or in the same proportion of extremely low income renter households to all renter households within the

City, as determined by the most recently available data from the United States Department of Housing and Urban Development's Comprehensive Housing Affordability Strategy database, if the income category is unknown for any of the following:

a. The current household in occupancy at the time of application submittal;

b. The last household in occupancy if a unit is unoccupied at the time of application submittal; or

c. The households at the highpoint of such units that existed in the five-year period preceding application, if the units have been vacated or demolished.

4. At least the same total number of dwelling units and at least the same total number of bedrooms shall be replaced at the same or deeper level of affordability;

5. The required number of affordable replacement units shall not be reduced as the result of the deeper level of affordability of the affordable replacement units;

6. Affordable replacement units affordable to lower, very low or extremely low income households shall be rental dwelling units; and

7. Moderate income units. Units subject to a covenant that restricts rents to levels affordable to moderate income households shall be replaced with units that are affordable to households of moderate income or below moderate income. If they are replaced with units affordable to households of moderate income, the affordable replacement units may be rental or for-sale.

C. Inclusionary Housing or Density Bonus. Affordable replacement units required by this Chapter may count toward any affordable housing set-aside units required in connection with the granting of a density bonus, or the requirements of the City's inclusionary housing zoning regulations, if applicable.

D. Affordable replacement units shall be provided on-site. Replacement units may be provided off-site if: (i) the proposed development requiring replacement units does not have a residential component, or (ii) if the City Council determines, based on substantial evidence, that such off-site compliance will provide greater public benefit than would provision of the replacement units on-site.

E. Tenure. Affordable replacement units in a common interest development or a single-family residential subdivision shall be for-sale only.

F. Timing. All permits and entitlements, including the building permits, for the affordable replacement units shall be obtained prior to, or concurrently with, the permits and entitlements, including the building permits, for the non-replacement units.

G. Duration of Affordability. The affordability term for replacement units shall be the longer of: (i) fifty-five (55) years from the issuance of a tentative or final certificate of occupancy for such replacement units, or (ii) for so long as the subject property which includes such replacement units is developed for a residential use.

H. Covenant and Agreement Required. A covenant and agreement ensuring the continued availability of affordable replacement units shall be executed and recorded to the satisfaction of the City Attorney.

(ORD-22-0005 § 1, 2022; ORD-21-0007 § 1, 2021)

21.11.060 Approvals.

Notwithstanding any other provision of this Code, and in compliance with Government Code Section 66300 (regardless of whether such Section remains effective), where housing is an allowable use, the City shall not approve any application, project, policy or condition that would result in any of the following effects:

A. Changing the general plan land use designation, specific plan land use designation, or zoning of a parcel or parcels of property to a less intensive use or reducing the intensity of land use within an existing general plan land use designation, specific plan land use designation, or zoning district below what was allowed for the parcel or parcels and in effect as of January 1, 2018. For the purpose of this Section, "less intensive use" includes, but is not limited to, reductions to height, density, or floor area ratio, new or increased open space or lot size requirements, or new or increased setback requirements, minimum frontage requirements, or maximum lot coverage limitations, or anything that would lessen the intensity of housing.

B. Imposing a moratorium or other limitation on housing development, including mixed use developments, unless a finding is specifically made that said restriction is necessary to protect against an imminent threat to the health and safety of persons residing in, or within the immediate vicinity of, the area subject to the moratorium; or for projects specifically identified as existing restricted affordable housing.

C. Notwithstanding the above, nothing in this Chapter shall prohibit the City from changing a land use designation or zoning ordinance to a less intensive use if the City concurrently changes the development standards, policies, and conditions applicable to other parcels within the City to ensure that there is no net loss in residential capacity.

D. This Chapter does not prohibit the City from changing a land use designation or zoning ordinance to a less intensive use on a site that is a mobile-home park, as defined in Section 18214 of the Health and Safety Code, as of the effective date of this Chapter, and the no net loss requirement shall not apply.

E. This Chapter does not prohibit the City from enacting a development policy, standard, or condition that is intended to preserve or facilitate the production of housing for lower income households, as defined in Section 50079.5 of the Health and Safety Code, or housing types that traditionally serve lower income households, including mobile-home parks, single-room occupancy units, or units subject to any form of rent or price control through the City's valid exercise of its police power.

(ORD-22-0005 § 1, 2022; ORD-21-0007 § 1, 2021)

CHAPTER 21.15 DEFINITIONS*

21.15.010 Purpose.

The purpose of this Chapter is to establish definitions for words, phrases and terms used in this Title, and unless the context clearly requires a different meaning, the following words, phrases and terms shall be defined as set forth in this Chapter.

(Ord. C-6533 § 1 (part), 1988)

21.15.020 Rules of Construction.

The following general rules of construction shall apply to the provisions of this Title:

A. The particular shall control the general.

B. The word "shall" is mandatory and not discretionary. The word "may" is discretionary.

C. In case of any difference of meaning or implication between the text of any provision and any caption, heading, illustration or figure, the text shall control.

D. Words in the present tense include the future, and the words in the singular include the plural, and the plural the singular, unless the context clearly indicates the contrary.

E. The words "activities" and "facilities" include any part thereof.

F. The word "City" means the City of Long Beach, California.

G. All public officials, bodies, and agencies to which reference is made are those of the City of Long Beach, California, unless otherwise indicated.

H. Unless the context clearly indicates the contrary, the following conjunctions shall be interpreted as follows:

1. "And" indicates that all connected items or provisions apply.

2. "Or" indicates that the connected items or provisions apply singly or in any combination.

3. "Either...or" indicates that the connected items or provisions shall apply singly, but not in combination.

4. "Neither ... nor" indicates that the connected items or provisions shall not apply singly or in combination.

I. "Occupied" shall be deemed to include the phrase "arranged, designed or intended to be occupied".

(Ord. C-6533 § 1 (part), 1988)

*__Note__—Figures 15-1 through 15-7 referred to in this Chapter are located at the end of the Chapter.

21.15.025 Terms not defined.

Where terms are not defined through the methods authorized by this Section, such terms shall have ordinarily accepted meanings such as the context implies. Webster's Third New International Dictionary of the English Language, Unabridged, shall be considered as providing ordinarily accepted meanings.

(ORD-16-0028 § 12, 2016)

21.15.030 Abandoned.

"Abandoned" means given up, deserted, forsaken, demolished or changed to another use. A nonconforming use shall be considered abandoned if not used for a period of one (1) year, if the business license establishing the use has expired, and remained expired, for a period of one (1) year or if the structure housing the use is demolished or rebuilt.

(Ord. C-7378 § 1, 1995: Ord. C-6533 § 1 (part), 1988)

21.15.040 Abut.

"Abut" means touching or having a common boundary at some point (Figure 15-1).

(Ord. C-6533 § 1 (part), 1988)

21.15.045 Accessory dwelling unit.

"Accessory dwelling unit" means an attached or a detached residential dwelling unit which provides complete independent living facilities for one or more persons. An accessory dwelling unit is an accessory use and not a principal use of land. It shall include permanent provisions for living, sleeping, eating, cooking, and sanitation, and shall be located on the same lot as the single-family dwelling to which it is subordinate (the primary dwelling), and shall have a separate exterior entrance. An accessory dwelling unit also includes the following:

A. An efficiency unit, as defined in Section 17958.1 of the California Health and Safety Code.

B. A manufactured home, as defined in Section 18007 of the California Health and Safety Code.

(ORD-17-0031 § 12, 2017)

21.15.050 Accessory building, accessory structure.

"Accessory building or structure" means a detached or attached building or structure, the use of which is subordinate and customarily incidental to that of the main building or structure, or to the main use of the land. An accessory building or structure must be located on the same lot as the main building or structure.

(ORD-17-0031 § 1, 2017; Ord. C-6533 § 1 (part), 1988)

21.15.055 Accessory tasting room.

"Accessory tasting room" means an accessory use associated with an Alcoholic Beverage Manufacturing (ABM) facility use that is devoted to the purchase, consumption and tasting of beer, wine or distilled spirits produced on site. Consumption, tasting and purchase of alcoholic beverages shall be limited to product produced on site. An accessory tasting room may also include ancillary retail sales directly associated with the primary ABM use. An accessory tasting room may not exceed thirty percent

(30%) of the gross floor area (GFA) of the ABM facility, not including restrooms serving the accessory tasting room or ABM facility. Food may be sold in a form that is ready to eat at the time of sale; a full-service kitchen is not permitted in an accessory tasting room.

(ORD-15-0010, § 4, 2015)

21.15.060 Accessory use.

"Accessory use" means a use that is customarily incidental and/or necessarily related to the principal use of the land, building, or structure. An accessory use is located on the same lot as the principal building or use and is dependent upon the principal use for the majority of its use or activity.

(Ord. C-6533 § 1 (part), 1988)

21.15.063 Accessory use, residential.

"Accessory residential use" means a residential use that is customarily incidental and/or necessarily related to a principal nonresidential use of land, building, or structure. An accessory residential use is located on the same lot as the principal nonresidential building or use and is dependent upon the principal nonresidential use for the majority of its use or activity. The occupant of an accessory residential use is employed in or routinely conducts business in the nonresidential space. Accessory residential uses include, but are not limited to, a caretaker's or night watchman's residence (Section 21.15.445), an artist's studio and residence (Section 21.15.240), and parsonage (Section 21.15.2005). "Accessory residential use" does not include accessory dwelling units (Section 21.15.045).

(ORD-17-0031 § 2, 2017; Ord. C-6895 § 27, 1991)

21.15.064 Acutely Hazardous Material.

"Acutely hazardous material" means the identical list of chemicals as the Extremely Hazardous Substances prepared by the Environmental Protection Agency and any supplemental amendments to that list. Each Extremely Hazardous Material has a Threshold Planning Quantity which is used for the compliance threshold for the Risk Management and Prevention Program, unless a lesser threshold has been established by the administering agency.

(Ord. C-7247 § 29, 1994)

21.15.064.5 Adaptive reuse.

"Adaptive reuse" means a construction or remodeling project that reconfigures existing spaces, structures or buildings to accommodate a new use or to accommodate another purpose than what it was originally designed for.

(ORD-14-0004, § 2, 2014)

21.15.065 Addition.

"Addition" means the expansion of an existing building by creating more building area. (Also see Sections 21.15.2275 and 21.15.2250.)

(Ord. C-6822 § 21, 1990)

21.15.070 Adjacent.

"Adjacent" means situated near or close by. "Adjacent" includes real property across alleys, streets, public waterways or other public property (Figure 15-1).

(Ord. C-6533 § 1 (part), 1988)

21.15.080 Adjoining.

"Adjoining" means a lot or parcel of land which shares all or part of a common lot line with another lot or parcel of land (Figure 15-1).

(Ord. C-6533 § 1 (part), 1988)

21.15.090 Adjusted earnings.

"Adjusted earnings" means the earnings level established by the United States Department of Housing and Urban Development (HUD) for the Los Angeles/Long Beach standard metropolitan statistical area, as revised from time to time.

(Ord. C-6533 § 1 (part), 1988)

21.15.100 Administrative service.

"Administrative service" means the research, analysis, communication, management and decision center related to the principal use on a site.

(Ord. C-6533 § 1 (part), 1988)

21.15.110 Adult entertainment business.

"Adult entertainment business" refers to any use defined in this Section.

A. "Adult bookstore" means an establishment having twenty percent (20%) or more of its stock in trade in books, magazines and other periodicals, videotapes or other similar materials on display or available for sale or viewing on the premises which are distinguished or characterized by their emphasis on matter depicting, describing or relating to specified sexual activities or specified anatomical areas.

B. "Adult mini motion picture theater" means an enclosed building with a capacity for less than fifty (50) persons, which is used for presenting, on a regular and substantial basis, material distinguished or characterized by an emphasis on matter depicting or relating to specified sexual activities or specified anatomical areas for observation by patrons in the facility.

C. "Adult motion picture arcade" means any place to which the public is permitted or invited and where coin or slug operated or electronically, electrically or mechanically controlled still or motion picture machines, projectors or other image producing devices are maintained to show images on a regular and substantial basis, where the images so displayed are distinguished or characterized by an emphasis on depicting or describing specific sexual activities or specified anatomical areas.

D. "Adult motion picture theater" means an enclosed building with a capacity of fifty (50) or more persons, which is used for representing on a regular and substantial basis, material distinguished or characterized by an emphasis on matter depicting, describing or relating to specified sexual activities or specified anatomical areas for observation by patrons in the facility.

E. "Cabaret" means a nightclub, theater or other establishment which features live performances by topless and/or bottomless dancers, exotic dancers, strippers, wrestlers, or similar entertainers, and where such performances are distinguished or characterized by an emphasis on specified sexual activities or display specified anatomical areas.

F. "Model studio" means any premises on which there is conducted any business where, for any fee, compensation, consideration or gratuity, figure models who display specified anatomical areas are provided to be observed, sketched, drawn, painted, sculptured, photographed or otherwise depicted by persons paying such consideration or gratuity. For the purposes of this Section, "model studio" shall not be deemed to include:

1. Any art studio or art gallery maintaining a business license in the City where the activity described in this Subsection is carried on as an activity that is accessory to the principal use, provided that the operator complies with the additional conditions and specifications as set forth in Chapter 21.51 entitled "Accessory Uses"; or

2. Live nude art drawing or painting, or classes related thereto, that are conducted at an educational institution such as a private or public school, vocational school, college, or university qualified by the State Board of Education to give general academic instruction.

G. "Sexual encounter center" means any business, agency or person who, for any form of consideration or gratuity, provides a place where three (3) or more persons may congregate, assemble or associate for the purpose of engaging in specified sexual activities or exposing specified anatomical areas.

H. For the purposes of this Section, "specified anatomical areas" include the human male or female genitals, pubic hair, anus, cleft of the buttocks, or vulva with less than a fully opaque covering and/or covered male genitals in a turgid state. This provision may not be complied with by applying an opaque covering simulating the appearance of the specific anatomical part required to be covered.

I. For the purpose of this Section, "specified sexual activities" include:

1. Actual or simulated sexual intercourse, anal intercourse, oral or anal copulation, bestiality, pedophilia, necrophilia, direct physical stimulation of unclothed genitals, flagellation or torture in the context of sexual relationship, or the use of excretory functions in the context of a sexual relationship; or

2. Clearly depicted human genitals in a state of sexual stimulation, arousal or tumescence; or

3. Use of human or animal masturbation, sodomy, oral copulation, coitus, ejaculation; or

4. Fondling or touching of nude human genitals, pubic region, buttocks or female breast; or

5. Masochism, erotic or sexually oriented torture, beating or the infliction of pain; or

6. Erotic or lewd touching, fondling or other contact with an animal by a human being; or

7. Human erection, urination, menstruation, vaginal or anal irrigation.

J. For the purpose of this Section, "regular and substantial basis" means presenting such material on four (4) or more days within any calendar month. Presenting such material on three (3) or fewer nonconsecutive days within a calendar month with at least seven (7) days between the days the material is presented shall be deemed occasional or incidental and not a violation. However, presenting such material on consecutive days or with less than a seven (7) day interval between showings is a violation. An establishment under one ownership or management at one (1) location shall be considered one (1) "business" even though there may be more than one (1) screening room or viewing room at that location.

(ORD-18-0018 § 2, 2018; ORD-12-0018(Emerg.) § 5, 2012; Ord. C-7961 § 1, 2004; Ord. C-7274 § 2, 1994: Ord. C-7064 § 1, 1992; Ord. C-6684 §§ 11, 12, 1990; Ord. C-6533 § 1 (part), 1988)

21.15.113 Adult-Use Cannabis Dispensary.

A retail use (SIC Code 59) where cannabis goods or devices for the use of cannabis goods are offered, either individually or in any combination, for retail sale to customers at an on-site fixed location, including an establishment that also offers delivery of cannabis goods as part of a retail sale, in addition to on-site sales, in compliance with Titles 5.90 and 5.92

For adult-use delivery-only cannabis dispensary, see "Adult-Use Cannabis delivery-only dispensary".

(ORD-24-0025 § 3, 2024; ORD-18-0015 § 7, 2018)

21.15.114 Adult-Use Cannabis Delivery-Only Dispensary.

A commercial use in which any person, entity, or operation, in whole or in part, whether operating for-profit or not-for-profit, and all associated owners, employees, managers, or agents engaged in both medicinal and adult-use commercial cannabis activity from a permitted premise that does not have a retail storefront, is not open to the public and by which the exchange of products is facilitated directly to an end-consumer through off-site delivery only, with no transactions physically occurring on-site at the facility.

For retail (SIC Code 59) adult-use cannabis dispensary, see "Adult-Use Cannabis Dispensary".
(ORD-24-0025 § 1, 2024)

21.15.120 Aggrieved person.

"Aggrieved person" means any person who testified personally or through a representative at a public hearing; who informed the staff of the Zoning Division of the Department of Planning and Building in writing prior to hearing of an interest in the subject of a hearing; or who, for good cause, was unable to do either.

(Ord. C-6533 § 1 (part), 1988)

21.15.130 Airport or aircraft landing field.

"Airport" or "aircraft landing field" means an area of land or water which is used or intended to be used for the landing and takeoff of aircraft; any appurtenant areas used or intended to be used for airport buildings or other airport facilities or rights-of-way; and all other airport buildings and facilities located thereon.

(Ord. C-6533 § 1 (part), 1988)

21.15.135 Alcoholic beverage manufacturing.

"Alcoholic Beverage Manufacturing (ABM)" means a facility that is used for the production of alcoholic beverages including beer, wine and distilled spirits in accordance with a valid alcohol production license from the State of California. An ABM use may include an accessory tasting room as an accessory use. The accessory tasting room may not exceed thirty percent (30%) of the gross floor area (GFA) of the ABM facility, not including restrooms serving the accessory tasting room or ABM facility. Food may be sold in a form that is ready to eat at the time of sale; a full-service kitchen is not permitted in ABM facilities or accessory tasting rooms.

(ORD-15-0010 § 5, 2015)

21.15.140 Alley.

"Alley" means a public or private way twenty feet (20') or less in width.

(Ord. C-6533 § 1 (part), 1988)

21.15.150 Alteration.

See "Demolish" and "rebuild".

(Ord. C-6533 § 1 (part), 1988)

21.15.160 Amortize, amortization.

"Amortize, amortization" means to reduce to no value by prorating over a period of time.

(Ord. C-6533 § 1 (part), 1988)

21.15.165 Amusement/entertainment facilities.

"Amusement/entertainment facilities" means a principal commercial land use providing amusement or entertainment services in an indoor or outdoor facility, for the purpose of some leisure activity, including, but not limited to, arcade, computer arcade, escape rooms, laser tag, miniature golf, skating rink, tennis club, virtual reality rooms and similar uses.

(ORD-19-0028 § 28, 2019)

21.15.170 Amusement machine.

"Amusement machine" means the following apparatus operated by or for a patron or patrons for amusement, diversion or sport in exchange for financial or other valuable consideration: juke boxes, batting cages, pinball machines, electronic or video games, shuffleboard games, mini-motion picture projectors, screens and structures, public video projectors, screens, stalls and structures, and the like.

(Ord. C-6533 § 1 (part), 1988)

21.15.180 Amusement park.

"Amusement park" means a commercial entertainment land use located primarily in an outdoor setting and which consists of one (1) or more amusement rides.

(Ord. C-6533 § 1 (part), 1988)

21.15.190 Amusement ride.

"Amusement ride" means a mechanical device which is not coin-operated; which provides motion or the sensation or the illusion of motion; and which does not provide transportation from one site to another. This includes carousels, ferris wheels, roller coasters, theaters or mini-theaters showing films intended primarily to create a sensation of movement, and the like. This does not include harbor tours, bus tours, shuttle buses, and the like.

(Ord. C-6533 § 1 (part), 1988)

21.15.195 Animal boarding.

"Animal boarding" means a facility designed to accommodate the overnight stay and care of household pets including adequate eating, sleeping, and living provisions.

(ORD-19-0028 § 29, 2019)

21.15.196 Animal daycare.

"Animal daycare" means a facility which provides non-medical care for animals on less than a twenty-four (24) hour basis. Animal daycare uses include but are not limited to, instructional training, recreation, and animal nurseries.

(ORD-19-0028 § 30, 2019)

21.15.197 Animal lounge.

"Animal lounge" means a commercial land use primarily engaged with providing a space to allow individuals and adoptable household animals to engage in recreational opportunities with one another.

(ORD-19-0028 § 31, 2019)

21.15.200 Antique shop.

"Antique shop" means any premises used for the sale of articles which are one hundred (100) or more years old or are collectible. Antique shop does not include secondhand store as defined in this Chapter.

(Ord. C-6533 § 1 (part), 1988)

21.15.205 Apartment.

"Apartment" means a multi-family dwelling rented or leased to permanent occupants. No transient occupants are allowed unless the use is also approved and licensed as a hotel.

(Ord. C-6595 § 21, 1989)

21.15.210 Appealable area.

"Appealable area" means that portion of the Coastal Zone seaward of the appealable area boundary, as established on a map adopted as part of the Long Beach Coastal Program.

(Ord. C-6533 § 1 (part), 1988)

21.15.220 Arcade.

"Arcade" means a principal commercial entertainment land use consisting of five (5) or more amusement machines located within one (1) building or structure and operated in exchange for financial or other consideration. Any use or business with five (5) or more amusement machines shall be considered an arcade in addition to any other principal use of the land.

(Ord. C-6533 § 1 (part), 1988)

21.15.230 Architectural protrusion.

"Architectural protrusion" means a projection from a wall of a building that is more than eight inches (8″) in width or projection, is an integral part of the design of that wall, but which provides no usable interior space.

(Ord. C-6533 § 1 (part), 1988)

21.15.235 Area median income.

"Area Median Income" means the annual median income for Los Angeles County, adjusted for household size, as published periodically in the California Code of Regulations, Title 25, Section 6932, as amended, or its successor provision, or as established by resolution of the City Council in the event that such median income figures are no longer published periodically in the California Code of Regulations.

(ORD-26-0017 § 14, 2026)

21.15.240 Artist studio.

"Artist studio" means a premises used for the creation of fine arts. An artist studio may contain living quarters as an accessory residential use (Section 21.15.063). When studio and residence are combined they are designated as "artist studio and residence" in the use table.

(Ord. C-6895 § 2, 1991: Ord. C-6533 § 1 (part), 1988)

21.15.245 Assembly use.

"Assembly use" means any facility for public or private meetings or gatherings including community centers, religious assembly facilities, civic and private auditoriums, union halls, meeting halls for clubs and other membership organizations and other uses that are classified as assembly use under the California Building Code. This definition includes related facilities for the use of members and attendees such as kitchens, multi-purpose rooms, and storage. This definition does not include gymnasiums or other sports facilities, convention centers, or facilities such as day care centers and schools that are separately defined and regulated.

(ORD-18-0030 § 8, 2018)

21.15.250 Attached.

"Attached" means the physical connection of two (2) structures sharing four feet (4′) or more of common wall.

(Ord. C-6533 § 1 (part), 1988)

21.15.260 Attic.

"Attic" means the unfinished level between the ceiling of the top floor and the roof. Attic shall be an uninhabitable area.

(Ord. C-6533 § 1 (part), 1988)

21.15.270 Auto detailing.

"Auto detailing" means an establishment which performs hand-washing, waxing and interior cleaning of passenger vehicles.

(Ord. C-6533 § 1 (part), 1988)

21.15.280 Auto repair, major.

"Major auto repair" means a place providing a full range of repair and maintenance services for motor vehicles.

(Ord. C-6533 § 1 (part), 1988)

21.15.290 Auto repair, minor.

A. "Minor auto repair" means a place performing the following repair and maintenance services for motor vehicles:

1. **Tune-ups.** Major and minor tune-up involving spark plugs, points, condensers, valve adjustment, carburetor overhaul, adjustment of fuel injection systems, fuel pump and all necessary filters;

2. **Lubrication.** Oil changes and filter replacement, transmission and rear end oil change;

3. **Cooling System.** Remove and replace radiator and repair of same (not including core repair or replacement); replace water pump, heater and other hoses; replace thermostats; recharge air conditioners;

4. **Drive Train.** Replacement of transmission and motor support mounting; replacement of driveshaft universal bearings, center support bushing, accelerator and brake cables; minor repair of hydraulic systems; replacement of shock absorbers;

5. **Brakes.** Remove and replace shoes and brake pads; rebuild master and wheel cylinders and disc caliper; adjustment of brakes. Machine work related to turning of drums or discs;

6. **Wheels.** Adjust steering box; replacement of rubber bushings in suspension; wheel balancing; replacement of wheel bearings;

7. **Electrical.** Charge battery; remove, repair and replace starter, alternator, generator and regulator; rewiring of automobile and lights; repair or replacement of gauges; installation of radios;

8. **Fuel System.** Change gas tank; change and repair of fuel lines; replace fuel gauge sending unit; tail pipe and muffler replacement.

B. "Minor auto repair" does not include:

1. Cylinder head replacement;

2. Valve grinding or replacement;

3. Clutch replacement;

4. Repair, replace transmission, rear end, rear axles, king pins;

5. Body work;

6. Engine replacement;

7. Repair of fuel tank;

8. Radiator or heater core repair or replacement;

9. Painting;

10. Fender repair;

11. Engine or transmission removal; or

12. Repair activities that require entry into the engine other than those specifically listed as approved as minor automobile repair.

C. Any activity combining any activity in Subsection 21.15.290.A with any activity in Subsection 21.15.290.B shall be defined as "major auto repair".

(Ord. C-7663 § 2, 1999; Ord. C-6533 § 1 (part), 1988)

21.15.300 Automobile service station.

"Automobile service station" means a place of retail business engaged in supplying goods essential to the normal operation of motor vehicles.

(Ord. C-6533 § 1 (part), 1988)

21.15.310 Automobile wrecking.

"Automobile wrecking" means the dismantling, demolition or crushing of any automotive vehicle, for the storage of abandoned or irreparably damaged vehicles. A "wrecked automobile" means any vehicle with:

A. Dented areas in excess of one (1) square foot;

B. Rusted exterior body parts; and/or

C. Broken glass.

(Ord. C-6533 § 1 (part), 1988)

21.15.320 Awning.

"Awning" means a sunscreen cantilevered from the wall of a building.

(Ord. C-6533 § 1 (part), 1988)

21.15.330 Balcony.

"Balcony" means an open area located either recessed or projected out from the walls of a building, without support from the ground or floors below. Balconies are four feet (4′) or more above grade and are open on one (1) or more sides except for a railing or parapet not more than forty-two inches (42″) high. Balcony does not include exterior corridor.

(ORD-16-0028 § 5, 2016; Ord. C-6533 § 1 (part), 1988)

21.15.335 Bank.

"Bank" means any national and state bank, and any federal branch and insured branch; and includes any former savings association. The term "state bank" means any bank, banking association, trust company, savings bank, industrial bank (or similar depository institution which the Board of Directors finds to be operating substantially in the same manner as an industrial bank), or other banking institution which is engaged in the business of receiving deposits, other than trust funds; and is incorporated under the laws of any State or which is operating under the Code of Law for the District of Columbia, including any cooperative bank or other unincorporated bank the deposits of which were insured by the corporation on the day before the date of the enactment of the Financial Institutions Reform, Recovery, and Enforcement Act of 1989.

(ORD-13-0018, § 8, 2013)

21.15.340 Basement.

"Basement" means any area or room in a structure in which the ceiling is not more than four feet (4′) above grade.

(Ord. C-6533 § 1 (part), 1988)

21.15.350 Bay window.

"Bay window" means a window projecting from the wall of a building containing windows on all walls of the projection. The projecting bay is floor to ceiling in height, is not more than one-half (½) the width of the room from which it projects and is not less than fifty percent (50%) glass.

(Ord. C-7032 § 2, 1992: Ord. C-6533 § 1 (part), 1988)

21.15.360 Bed and Breakfast Inn.

"Bed and breakfast inn" means a house, or portion thereof, where short-term stay lodging rooms and meals are provided. The operator of the inn shall live on the premises, or adjacent premises.

(Ord. C-6533 § 1 (part), 1988)

21.15.365 Bicycle parking space.

"Bicycle parking space" means a space designated for parking a bicycle that includes a stationary object, such as a rack, locker or secure area, to which a bicycle can be locked.

Types of bicycle parking spaces include short-term and long-term spaces:

Short-term bicycle parking spaces are intended for visitors and customers with typical bike storage needs of up to 2 hours. These spaces are typically provided in the form of bike racks and bike corrals and may be located in a publicly accessible area.

Long-term bicycle parking spaces are intended for use by employees, residents, public transit users, and others with typical bike storage needs of more than 2 hours. These spaces are typically located in a secure, sheltered, weather protected, controlled-access area, such as a bike locker, bicycle room, garage, secure bike parking area, or basement.

(ORD-24-0033 § 1, 2024)

21.15.370 Billboard.

"Billboard" means a sign that identifies or communicates a commercial or noncommercial message related to an activity conducted, a service rendered, or a commodity sold at a location other than where the sign is located. This includes, but is not limited to, electronic billboards, building graphics, supergraphics, building wraps, and wall drop signs containing off-site messages, and billboards painted or applied to building walls.

(ORD-12-0006, § 1, 2012; Ord. C-6533 § 1 (part), 1988)

21.15.372 Billboard, abandoned.

A billboard shall be considered abandoned consistent with the definition and standards set forth in Section 2272 (Abandoned Display) of the Outdoor Advertising Act, California Business and Professions Code, as amended from time to time. If the billboard in question is not subject to the Outdoor Advertising Act, it shall be considered abandoned consistent with the definition of "abandoned" contained in Section 21.15.030 ("Abandoned") of this Title.

(ORD-12-0006, § 6, 2012)

21.15.374 Billboard, electronic.

An electronic billboard is a billboard whose alphabetic, pictographic, or symbolic informational content can be changed or altered on a fixed display surface composed of electronically illuminated or electronically actuated or motivated elements. This includes billboards with displays that have to be preprogrammed to display only certain types of information (i.e., time, date, temperature) and billboards whose informational content can be changed or altered by means of computer-driven electronic impulses. This includes, without limitation, billboards also known as digital billboards or LED billboards.

(ORD-12-0006, § 6, 2012)

21.15.380 Board and Care Home.

See "Residential Care Facility".

(Ord. C-6533 § 1 (part), 1988)

21.15.390 Boardinghouse.

"Boardinghouse" means a house, or portion thereof, where food and lodging are provided for long-term occupancy. Boardinghouse does not provide care service.

(Ord. C-6533 § 1 (part), 1988)

21.15.400 Body or Hearing Body.

"Body or hearing body" means the individual or group duly authorized by this Title to consider changes to, relief from or special consideration under the Zoning Regulations. This definition includes the City Council, City Planning Commission, the Zoning Administrator, and the Site Plan Review Committee.

(Ord. C-6533 § 1 (part), 1988)

21.15.410 Building.

"Building" means any roofed structure built for the support, shelter or enclosure of persons, animals, chattels or property of any kind.

(Ord. C-6533 § 1 (part), 1988)

21.15.420 Building Code.

"Building Code" means the building regulations of the City of Long Beach.

(Ord. C-6533 § 1 (part), 1988)

21.15.430 Building Coverage.

"Building coverage" means "lot coverage". (See "lot coverage".)

(Ord. C-6533 § 1 (part), 1988)

21.15.440 Business Support Service.

"Business support service" means a commercial land use consisting of activities performed for or products supplied to other commercial land uses. Business support services include printing, photo-copying, business equipment rental and office supply.

(Ord. C-6533 § 1 (part), 1988)

21.15.441.1 Cannabis cultivation.

An industrial use that engages in the commercial activity of planting, growing, harvesting, drying, curing, grading, or trimming of cannabis. This definition also includes a nursery which produces clones, immature plants, seeds, or other agricultural products specifically for the planting, propagation, and development of cannabis.

(ORD-20-0011 § 1, 2020; ORD-18-0015 § 8, 2018)

21.15.441.2 Cannabis manufacturing/processing.

An industrial use (SIC Code 283) engaged in the production, conversion, preparation, propagation, deriving, processing, or compounding of cannabis goods either directly or indirectly or by extraction methods, or independently by means of chemical synthesis, or by a combination of extraction and chemical synthesis at a fixed location that packages or repackages cannabis goods or labels or relabels its container.

(ORD-18-0015 § 8, 2018)

21.15.441.3 Cannabis distribution.

An industrial use (SIC Code 422) engaged in the transporting of third-party cannabis goods between licensed cannabis facilities, arranging for testing of cannabis goods, and conducting quality assurance review of cannabis goods to ensure compliance with all packaging and labeling requirements.

(ORD-20-0011 § 2, 2020; ORD-18-0015 § 8, 2018)

21.15.441.4 Cannabis testing.

A professional service use (SIC Code 873) that offers or performs tests of cannabis goods and that is ISO/IEC 17025 accredited, or pending ISO/IEC 17025 accreditation, and licensed by the California Bureau of Cannabis Control that provides independent testing of marijuana or marijuana products.

(ORD-18-0015 § 8, 2018)

21.15.441.5 Cannabis distributor, self-distribution.

An Industrial Use (SIC 422) engaged only in the distribution of cannabis goods that the subject licensee has cultivated or manufactured on-site. This definition does not permit the distribution of cannabis goods cultivated or manufactured by other third-party licenses.

(ORD-20-0011 § 5, 2020)

21.15.442 Car title loans.

"Car title loan" means a short-term loan in which the borrower's car title is used as collateral. The borrower must be the lien holder (i.e., own the car outright). Car title loans can be regulated as either consumer or commercial loans by the State of California. This does not include loans for automobiles regulated by the Federal Trade Commission (FTC).

(ORD-13-0018, § 9, 2013)

21.15.445 Caretaker residence.

A "caretaker residence" is an "accessory residential use" for the purpose of the twenty-four (24) hour maintenance or security of a nonresidential use.

(Ord. C-6895 § 28, 1991)

21.15.447 Carport.

"Carport" means a permanent roofed structure over a driveway, built for the purpose of sheltering an automobile. A carport is supported by attachment to a building and/or freestanding posts, and is open on all sides that are not attached to a building. A carport may have a solid or trellised roof. "Carport" does not include "porte cochere," or any temporary or non-permanent structure.

(ORD-17-0031 § 13, 2017)

21.15.450 Categorical Exclusion.

"Categorical exclusion" means those types of development excluded from a coastal development permit requirement pursuant to Public Resources Code Section 30610(d) and Sections 00130(c) and 00132(b) of the Local Coastal Program Implementation Regulations.

(Ord. C-6533 § 1 (part), 1988)

21.15.460 Certificate of Occupancy.

"Certificate of occupancy" means the official certification that a premises conforms to the provisions of the Zoning Regulations and Building Code and may be used or occupied. Unless such a certificate is issued, a structure shall not be occupied.

(Ord. C-6533 § 1 (part), 1988)

21.15.470 Chattel.

"Chattel" means any tangible, movable, personal property whatsoever, including, but not limited to: building materials, household furniture, appliances or motor vehicle parts, but not including duly licensed operable vehicles or recreational vehicles, boats, camper shells or off-the-road vehicles mounted thereon.

(Ord. C-6533 § 1 (part), 1988)

21.15.475 Check cashing.

"Check cashing" is a commercial land use that generally includes some or all of a variety of financial services including cashing of checks, warrants, drafts, or other commercial paper serving the same purpose. "Check cashing" does not include a state or federally chartered bank, savings association, credit union, or industrial loan company. "Check cashing" also does not include a retail seller engaged primarily in the business of selling consumer goods, including consumables, to retail buyers that cashes checks or issues money orders for a minimum flat fee not exceeding two dollars ($2.00) per transaction as a service to its customer that is incidental to its main purpose or business.

(ORD-13-0018, § 1, 2013; Ord. C-7663 § 33, 1999)

21.15.480 Child care—Large family daycare home.

"Large family daycare home" means a home providing accessory daytime care of seven (7) to fourteen (14) children, including those children of the daycare provider under ten (10) years of age.

(Ord. C-7550 § 1, 1998: Ord. C-7032 § 3, 1992: Ord. C-6533 § 1 (part), 1988)

21.15.490 Child care—Small family daycare home.

"Small family daycare home" means a home providing accessory daytime care of eight (8) or less children, including those children of the daycare provider under ten (10) years of age.

(Ord. C-7550 § 2, 1998: Ord. C-7032 § 4, 1992: Ord. C-6533 § 1 (part), 1988)

21.15.500 Chimney.

"Chimney" means that portion of a building enclosing a fireplace and flue, exterior to the walls of the building. Chimney does not include fuel storage areas, shelves, notches, voids, or contiguous storage areas not part of the operational firebox or flue and their enclosing walls. Chimneys, as projections, are limited to five feet (5′) in width.

(Ord. C-6533 § 1 (part), 1988)

21.15.510 Reserved.

Editor's note—ORD-18-0030 § 16, adopted Dec. 11, 2018, repealed § 21.15.510 entitled "Church," which derived from Ord. C-6533 § 1 (part), 1988.

21.15.520 Clinic, medical.

"Medical clinic" means an organization of medical professionals providing physical or mental health service or surgical care for the sick or injured. A medical clinic does not include inpatient or overnight accommodation.

(Ord. C-6533 § 1 (part), 1988)

21.15.530 Coastal zone.

"Coastal zone" means that area of the City as designated in Section 17 of the Statutes of 1976 of the State, exclusive of the area of the Port of Long Beach, as included in the Port of Long Beach Master Plan.

(Ord. C-6533 § 1 (part), 1988)

21.15.540 Coastally dependent.

"Coastally dependent" means and includes:

A. Uses and facilities for waterborne transportation;

B. Uses and facilities for waterborne or water's edge recreation;

C. Uses and facilities for recovery of natural resources from a marine or submarine environment;

D. Uses and facilities for research or monitoring the marine or submarine environment;

E. Uses and facilities for energy generation or waste disposal; and

F. Uses determined as coastally dependent by the Harbor Department, Harbor Commission or Coastal Commission in implementation of the port's certified local coastal program.

(Ord. C-6533 § 1 (part), 1988)

21.15.550 Code.

"Code" means the Long Beach Municipal Code.

(Ord. C-6533 § 1 (part), 1988)

21.15.555 Collectibles.

"Collectibles" means items whose value is derived from their aesthetic properties or an anticipation that they will increase in value rather than their functional properties; such as, coins, porcelain figurines, sports cards, stamps and the like.

(Ord. C-7047 § 29, 1992)

21.15.560 Commercial.

"Commercial" means a category of land uses characterized by the exchange of goods and services for financial or other consideration.

(Ord. C-6533 § 1 (part), 1988)

21.15.562 Commercial loans.

"Commercial loan" means a loan of a principal amount of five thousand dollars ($5,000.00) or more, or any loan under an open-end credit program, whether secured by either real or personal property, or both, or unsecured, the proceeds of which are intended by the borrower for use primarily for other than personal, family, or household purposes as defined in Section 22502 of the California Financial Code. For purposes of determining whether a loan is a commercial loan, the lender may rely on any written statement of intended purposes signed by the borrower. The statement may be a separate statement signed by the borrower or may be contained in a loan application or other document signed by the borrower. The lender shall not be required to ascertain that the proceeds of the loan are used in accordance with the statement of intended purposes.

(ORD-13-0018, § 10, 2013)

21.15.565 Commercial recreation.

"Commercial recreation" means any recreational use and/or activity for which a fee is charged by a private, for profit person, partnership or corporation where that entity has the discretion to set the fee independently of the City's Recreation Commission or Council.

(Ord. C-7826 § 1, 2002: Ord. C-7032 § 45, 1992)

21.15.570 Commercial storage/self-storage.

"Commercial storage/self-storage" means a commercial land use consisting of the rental of space for the storage of personal property (mini-warehouse) and the storage of recreational vehicles. An industrial warehouse is not considered commercial storage.

(Ord. C-7904 § 1, 2004: Ord. C-6533 § 1 (part), 1988)

21.15.575 Commissary.

"Commissary" means a commercial kitchen facility used for cooking, preparing, and storing food to be primarily served and consumed off-site such as for use in mobile food facilities or vending carts. This definition includes multi-tenant shared kitchen facilities, order fulfillment kitchens, and catering kitchen facilities. The following uses are allowed when incidental to the kitchen facility: research and teaching facilities, commercial food processing, and order fulfillment pick-up lobbies. Commissaries can operate within a restaurant kitchen as an accessory use, or as a standalone use. "Commissary" includes "catering."

(ORD-26-0012 § 8, 2026)

21.15.580 Commission.

"Commission" means the Planning Commission of the City.

(Ord. C-6533 § 1 (part), 1988)

21.15.590 Communal housing.

"Communal housing" means housing for nonfamily groups with common kitchen and dining facilities but without medical, psychiatric or other care. Communal housing includes boarding house, lodging house, dormitory, fraternity house, commune, and religious home. Communal housing does not include handicapped or senior citizen housing, residential care facility, or convalescent hospital or parsonage as defined by this Code.

(ORD-18-0030 § 1, 2018; Ord. C-6533 § 1 (part), 1988)

21.15.595 Community assembly.

"Community assembly" means a facility for public or private meetings including community centers, banquet centers, religious assembly facilities, civic auditoriums, union halls, meeting halls for clubs and other membership organizations. This definition includes functionally related facilities for the use of

members and attendees such as kitchens, multi-purpose rooms, and storage. It does not include gymnasiums or other sports facilities, convention centers, cultural facilities or facilities such as day care centers and schools that are separately classified and regulated.

(ORD-18-0030 § 9, 2018)

21.15.600 Community care facility.

See "Residential care facility".

(Ord. C-6533 § 1 (part), 1988)

21.15.602 Community correctional reentry center.

"Community correctional reentry center" means a special group residency in which the California Department of Corrections contracts with a public or private entity for the establishment and operation of a facility with programs to increase the likelihood of a successful parole by providing inmates training in industrial employment skills and other counseling as required by the State of California.

(Ord. C-7392 § 2, 1996)

21.15.605 Community garden.

"Community garden" means a plot of land where flowers, fruits, herbs, or vegetables are cultivated by individuals of a neighborhood (noncommercial activity).

(Ord. C-7378 § 22, 1995)

21.15.607 Computer arcade.

"Computer arcade" means a principal commercial entertainment land use consisting of five (5) or more computer terminals rented to the public for the primary purpose of playing computer games. "Computer arcade" is synonymous with "internet cafe", "internet arcade", "cyber arcade", and other internet or computer based entertainment businesses. Four (4) or less computers used in this way at one (1) site shall be considered an accessory use, subject to the provisions of Section 21.51.205. Computers used for business purposes in conjunction with printing services shall be considered a business office support use.

"Computer cafe", "cyber cafe", or "internet cafe" means an accessory use consisting of ten (10) or less computers rented to the public for the primary purpose of internet access, subject to the provisions of Section 21.51.226. Facilities that have eleven (11) or more computers shall be considered computer arcades. The principal use of a computer cafe, cyber cafe, or internet cafe shall be a restaurant of any type as defined by this Title 21.

(Ord. C-7961 § 2, 2004: Ord. C-7881 § 6, 2003)

21.15.610 Computer program consulting service.

"Computer program consulting service" means a professional office providing computer software consulting service. Such a service shall not include hardware maintenance and repair work.

(Ord. C-6533 § 1 (part), 1988)

21.15.615 Concession (density bonus).

See "Incentive (density bonus)."

(ORD-26-0017 § 15, 2026)

21.15.620 Conditional use.

"Conditional use" means a use of land that, due to the specific nature and unique characteristics of the use, requires special standards and discretionary review to insure conformance with the purpose of the Zoning Regulations.

(Ord. C-6533 § 1 (part), 1988)

21.15.630 Conditional use permit.

"Conditional use permit" means the discretionary permit granted by an authorized hearing body to establish a specific conditional use, subject to specified standards.

(Ord. C-6533 § 1 (part), 1988)

21.15.635 Consumer loans.

"Consumer loan" means a loan, whether secured by either real or personal property, or both, or unsecured (i.e., signature loan), the proceeds of which are intended by the borrower for use primarily for personal, family, or household purposes (the lender shall not be required to ascertain that the proceeds of the loan are used in accordance with the statement of intended purposes). For purposes of determining whether a loan is a consumer loan, the lender may rely on any written statement of intended purposes signed by the borrower. The statement may be a separate statement signed by the borrower, or may be contained in a loan application or other document signed by the borrower. In addition to the definition of consumer loan in California Finance Code Section 22230, a "consumer loan" also means a loan of a principal amount of less than five thousand dollars ($5,000.00), the proceeds of which are intended by the borrower for use primarily for other than personal, family, or household purposes.

(ORD-13-0018 § 11, 2013)

21.15.640 Convalescent hospital.

"Convalescent hospital" means a facility providing long-term nursing, dietary and other medical services to convalescents or invalids but not providing surgery or primary treatments such as are

customarily provided in a hospital. Convalescent hospital includes nursing home and rest home, but does not include general or specialized hospital or residential care facility. A convalescent hospital must be licensed by the State as such.

(Ord. C-6533 § 1 (part), 1988)

21.15.650 Conversion.

"Conversion" means changing the original purpose of a building to different use.

(Ord. C-6533 § 1 (part), 1988)

21.15.660 Corner cutoff.

"Corner cutoff" means the triangular area created by measuring from the corner of a lot six feet (6') by six feet (6') to ten feet (10') by ten feet (10') along each property line or driveway and connecting the points at the end of those lines (Figure 15-4).

(ORD-19-0028 § 1, 2019; Ord. C-6533 § 1 (part), 1988)

21.15.670 Corner lot.

See "Lot, corner."

(Ord. C-6533 § 1 (part), 1988)

21.15.680 Corral.

"Corral" means a pen or enclosure for confining livestock, as defined in this Title. It is generally a fenced-in area containing more than ninety-six (96) square feet of area which is open to the sky and which does not have a wall greater than six feet (6') in height.

(Ord. C-6533 § 1 (part), 1988)

21.15.690 Corrosive.

"Corrosive" means any substance which in contact with living tissue will cause destruction of tissue by chemical action. Corrosive shall not refer to such action on inanimate surfaces.

(Ord. C-6533 § 1 (part), 1988)

21.15.700 Courtesy parking.

"Courtesy parking" means parking provided on-premises or off-premises for visitors or customers as an accessory use.

(Ord. C-6533 § 1 (part), 1988)

21.15.705 Courtyard.

"Courtyard" means any usable open space surrounded on two (2) sides or more of its perimeter by a wall of a building which is clear from the ground to the sky.

(Ord. C-6933 § 41, 1991)

21.15.707 Cultural facility.

"Cultural facility" means a facility engaged in activities to serve and promote aesthetic and educational interest in the community that are open to the public on a regular basis. This definition includes performing arts centers for theater, music, dance, and events; spaces for display or preservation of objects of interest in the arts or sciences; libraries; museums; historical sites; aquariums; art galleries; and zoos and botanical gardens. Facilities may include space for classes or lectures. It does not include schools or institutions of higher education providing curricula of a general nature or facilities for assembly uses.

(ORD-18-0030 § 10, 2018)

21.15.710 Curb level.

"Curb level" means the level of the established curb in front of a building, as measured at the center of the front. Where no curb level has been established, the City Engineer shall establish the curb level or its equivalent.

(Ord. C-6533 § 1 (part), 1988)

21.15.720 Daycare center.

"Daycare center" means any facility which provides nonmedical care for an individual on less than a twenty-four (24) hour basis. Daycare center includes all daycare uses not qualifying as a child daycare home.

(Ord. C-6533 § 1 (part), 1988)

21.15.730 Day nursery, preschool or nursery school.

See "Daycare center."

(Ord. C-6533 § 1 (part), 1988)

21.15.740 Deck.

"Deck" means an open platform which is either: 1) ground-supported and freestanding or attached to a building; or 2) located upon the roof of a building.

(ORD-16-0028 § 6, 2016; Ord. C-6533 § 1 (part), 1988)

21.15.750 Demolish.

"Demolish" means to remove or modify more than fifty percent (50%) of the exterior walls of an existing building or structure, as measured by the linear length of the walls or more of one or more major structural components including exterior walls, structural floor systems, roof framing systems, and foundation systems; to remove less than fifty percent (50%) of one or more major structural components where the proposed demolition of the component(s) would result in cumulative demolition meeting or exceeding fifty percent (50%) of the entire structure since January 1, 1977 (based on available City of Long Beach records); or to remove a structure or a portion of a structure, the cost of which equals or exceeds fifty percent (50%) of the market value of the structure before the start of construction based on documented construction bid costs and either an appraisal by a professional property appraiser or County assessor data, if it is based on current market values.

1. A wall is considered to be demolished when any of the following occur above or below grade:

    a. Cladding or framing systems are altered in a manner that requires removal and replacement of fifty percent (50%) or more of those cladding or framing systems.

    b. Existing support for fifty percent (50%) or more of the wall is temporarily or permanently removed such that any portion of the remaining floors, roof, ceilings, or other building elements supported by the wall cannot remain freestanding without supplemental support.

    c. Additional reinforcement is needed for fifty percent (50%) or more of the wall including any remaining portions of the wall and cladding to provide structural support (e.g., addition of beams, joists and/or rafters, etc., whether alone or alongside existing/retained system elements).

2. Roof framing and structural floor systems shall be considered to be demolished when any of the following occur:

    a. The roof and/or floor structural framing is altered in a manner that requires removal and replacement of fifty percent (50%) or more of the roof or floor structural framing system elements (e.g., trusses, joists, and rafters).

    b. The roof and/or floor structural framing system requires additional reinforcement for fifty percent (50%) or more of the roof and/or floor structural framing including any remaining portions of the roof or floor system to provide structural support (e.g., addition of beams, joists and/or rafters, etc., whether alone or alongside existing/retained system elements).

3. Foundations shall be considered demolished and the entire structure shall be considered demolished when fifty percent (50%) or more of the foundation has been removed or modified as measured by horizontal surface area (slab foundation) or number of piers, posts caissons, and/or grade beams (pier and caissons).

4. For structures without walls or roofs, including fences, patios, decks, or similar, "demolish" means to remove fifty percent (50%) or more of the foundation or structural elements.

"Modify" includes removal of both interior and exterior cladding of the wall sections. "Modify" does not include repairs associated with Section 21.27.090 - restoration of projects consisting solely of exterior façade remodels with no interior reconfiguration.

(ORD-19-0007 § 1, 2019; ORD-16-0028 § 7, 2016; Ord. C-7619 § 1, 1999: Ord. C-6533 § 1 (part), 1988)

21.15.760 Density.

"Density" means the existing or projected number of rooms or dwelling units per unit of land as indicated by the context of the applicable regulation. Density may be regulated in units per lot, units per lot area, or dwelling units per acre, or a combination of the foregoing, as applicable. For density bonus purposes, density shall be quantified using dwelling units per acre.

(ORD-26-0017 § 1, 2026; Ord. C-6533 § 1 (part), 1988)

21.15.765 Density, Base.

"Base density," also given as "residential density," means the maximum density permitted by the Zoning Regulations, or a Planned Development District or Specific Plan as applicable, for a given lot, parcel, project, or circumstance. If the zoning district is not consistent with the Land Use Element of the General Plan, the density shall instead be as specified by the PlaceType (land use district) of the Land Use Element.

(ORD-26-0017 § 16, 2026)

21.15.770 Density Transfer.

"Density transfer" means permitting unused allowable densities in one area to be transferred to another area. Where density transfer is permitted, the average density over an area remains constant, but internal variations may occur. There is no density transfer mechanism in the Zoning Regulations, but this definition is retained for the purposes of approved projects approved under previous versions of the Zoning Regulations.

(ORD-26-0017 § 2, 2026; Ord. C-6533 § 1 (part), 1988)

21.15.772 Density Bonus.

Density bonus means an increase over the otherwise maximum permitted density for a given lot, parcel, project, or circumstance. The amount of density bonus to which a project is entitled shall be determined in accordance with the regulations applicable to the density bonus request.

(ORD-26-0017 § 17, 2026)

21.15.774 Density bonus unit.

"Density bonus unit" means a residential dwelling unit in excess of the allowable residential density otherwise allowed, which is approved in a housing development project in accordance with the density bonus regulations applicable to the project. These regulations include Chapter 21.63 and Chapter 21.68 of the Zoning Regulations, and Cal. Gov't Code §65915.

(ORD-26-0017 § 18, 2026)

21.15.780 Detached building.

"Detached building" means a building which does not have a wall of four feet (4′) or more in length in common with another building. If two (2) buildings are connected only by breezeways, extended walls, extended roofs, fences, or joists, in the absence of a common wall, the buildings shall be considered detached buildings for the purpose of this definition.

(Ord. C-6533 § 1 (part), 1988)

21.15.790 Development.

A. "Development" means:

1. The division of a parcel of land into two (2) or more parcels;

2. The construction, reconstruction, conversion, structural alteration, relocation or enlargement of any structure;

3. Any mining, excavation, landfill or land disturbance; or

4. Any use or extension of the use of land.

B. This definition includes, but is not limited to:

1. Subdivision pursuant to the Subdivision Map Act (commencing with Section 66410 of the Government Code);

2. Any other division of land, including lot splits, except where the land division is brought about in connection with the purchase of the land by a public agency for public recreational use;

3. Change in the intensity of use of water, or of access thereto;

4. Construction, reconstruction, demolition, or alteration of the size of any structure, including any facility of any private, public, or municipal utility; and

5. The removal or harvesting of major vegetation other than for agricultural purposes, kelp harvesting, and timber operations which are in accordance with a timber harvesting plan submitted pursuant to the Z'berg-Nejedly Forest Practice Act of 1973 (commencing with Section 4511).

C. As used in this Section, "structure" includes, but is not limited to, any building, road, pipe, flume, conduit, siphon, aqueduct, telephone line and electrical power transmission and distribution line.

(Ord. C-6533 § 1 (part), 1988)

21.15.800 Development agreement.

"Development agreement" means an agreement entered into between the City of Long Beach and a contracting party which relates to a specific real property, subject to the terms of the agreement, pursuant to the provisions of this Title and Article 2.5, Chapter 4, Division I of Title 7 of the California Government Code.

(Ord. C-6533 § 1 (part), 1988)

21.15.810 Development rights.

"Development rights" means the ability to use and improve a parcel of land as granted and regulated by the Zoning Regulations.

(Ord. C-6533 § 1 (part), 1988)

21.15.812 Development standard.

"Development standard" means any quantifiable requirement of the Zoning Regulations that dictates the physical layout, size, or conditions for development, including but not limited to: building setbacks, height limits, lot coverage, open space requirements, floor area ratio, and parking requirements. Development standards are an essential part of the "minimum requirements" of the Zoning Regulations (see Section 21.10.040).

(ORD-26-0017 § 19, 2026)

21.15.813 Development standards waiver (density bonus).

See "Waiver, development standards (density bonus)."

(ORD-26-0017 § 20, 2026)

21.15.820 Disposal.

"Disposal" means the abandonment, disposition or other removal of waste as a final action after use has been achieved or a use is no longer intended.

(Ord. C-6533 § 1 (part), 1988)

21.15.830 Disposal site.

"Disposal site" means the location where any final disposition of waste occurs.

(Ord. C-6533 § 1 (part), 1988)

21.15.840 District, zoning.

"Zoning district" means a section of the City delineated on the zoning map for which requirements and regulations uniformly govern the use, placement, spacing and size of land and buildings.

(Ord. C-6533 § 1 (part), 1988)

21.15.850 Double-frontage lot.

See "Lot, through."

(Ord. C-6533 § 1 (part), 1988)

21.15.860 Double zero side yard.

"Double zero side yard" means property developed to both side property lines (Figure 15-4).

(Ord. C-6533 § 1 (part), 1988)

21.15.870 Drive-in restaurant.

See "Drive-through facilities."

(ORD-19-0016 § 1, 2019; Ord. C-6533 § 1 (part), 1988)

21.15.875 Drive-through facilities.

Drive-through or Drive-up facilities. An establishment that sells products or provides services to occupants in vehicles, including drive-in or drive-up windows and drive-through services. Examples include, but are not limited to, fast-food restaurants, banks, dry cleaners, mortuaries, and pharmacies. Drive-through facilities do not include "click and collect" facilities in which an online order is picked up in a stationary retail business without use of a drive-in service.

(ORD-19-0016 § 9, 2019)

21.15.880 Driveway.

"Driveway" means a private roadway for the exclusive use of the occupants of a property and their guests, and which provides vehicular access to parking spaces, garages, dwellings or other structures on a site. A driveway shall not be considered as a street nor as part of any required parking.

(Ord. C-6533 § 1 (part), 1988)

21.15.890 Duplex (two-family dwelling).

"Duplex" means a building containing two (2) dwelling units.

(Ord. C-6533 § 1 (part), 1988)

21.15.900 Dwelling.

"Dwelling" means a building or portion thereof designed or used exclusively for permanent residential occupancy by one (1) or more persons.

(Ord. C-6533 § 1 (part), 1988)

21.15.910 Dwelling unit.

"Dwelling unit" means one (1) or more rooms designed, occupied or intended for occupancy as separate, self-contained, permanent living quarters. Separate housing units are those in which occupants live and eat separately from any other person in the building. Each dwelling unit has direct access from outside the building or through a common hall. Any area with a direct exterior access, a bathtub or shower, and a room other than the bathroom, which can together be locked off from the remainder of the building, will be considered a dwelling unit.

(Ord. C-7032 § 5, 1992: Ord. C-6533 § 1 (part), 1988)

21.15.915 Dwelling unit, accessory.

See "Accessory dwelling unit."

(ORD-17-0031 § 14, 2017)

21.15.920 Dwelling, multiple-family.

"Multiple-family dwelling" means a permanent building designed for or occupied by three (3) or more families living independently of each other. This includes apartment houses and condominiums, but does not include hotels, motels, communal housing, residential care facilities or convalescent hospitals.

(Ord. C-6533 § 1 (part), 1988)

21.15.930 Dwelling, one-family.

See "single-family dwelling."

(ORD-17-0031 § 3, 2017; Ord. C-6533 § 1 (part), 1988)

21.15.935 Dwelling, primary.

"Primary dwelling" means a single-family dwelling that is not an accessory dwelling unit. A primary dwelling is a principal use of land.

(ORD-17-0031 § 15, 2017)

21.15.940 Easement.

"Easement" means a recorded right or interest in the land of another, which entitles the holder thereof to some use, privilege or benefit out of or over the land.

(Ord. C-6533 § 1 (part), 1988)

21.15.950 Educational institution.

"Educational institution" means an institutional land use such as private or public school, college, or university qualified by the State Board of Education to give general academic instruction. Educational institution does not include vocational school as defined in this Chapter.

(Ord. C-6533 § 1 (part), 1988)

21.15.960 Electrical distribution substation.

"Electrical distribution substation" means an assembly of equipment (fuel cells, microwave, cable, radio and/or other communication facilities) which is part of a system for distribution of electric power. At an electrical distribution substation, electric energy is normally received at a subtransmission voltage and is transformed to a lower voltage, and/or is produced at this lower voltage (in case a fuel cell is installed) for distribution to the consumer.

(Ord. C-6533 § 1 (part), 1988)

21.15.962 Electrical generating station.

"Electrical generating station" means an installation containing prime movers, electric generators, auxiliary equipment, fuel storage and microwave, cable, radio and/or other communication facilities which are incorporated into the installation for the purpose of converting chemical, hydraulic and/or mechanical energy into electrical energy.

(Ord. C-6533 § 1 (part), 1988)

21.15.964 Electronic or video game.

"Electronic game" or "video game" means any device predominantly motivated or activated by electronic and mechanical means which is designed to be operated by or for a patron or patrons and for which a fee is charged. Electronic or video game include video games and other devices of a predominantly electronic or electronic and mechanical nature considered to be substantially similar to such devices.

(Ord. C-6533 § 1 (part), 1988)

21.15.966 Emergency shelter.

"Emergency shelter" means a dwelling area, provided on a short-term basis for the temporary housing of persons who are homeless, and where on-site supervision is provided whenever such shelter is occupied. An emergency shelter is an acceptable accessory use only when provided within an existing institutional building on a shared-use basis. A shared use exists when the sheltering of families or individuals in need of sanctuary is incidental to the primary institutional use for which the building is designed and intended.

(ORD-20-0026 § 1, 2020; Ord. C-6533 § 1 (part), 1988)

21.15.970 Entertainment service.

"Entertainment service" means a commercial land use which provides the rental of space or equipment on a short-term basis for the purpose of some leisure time activity. Entertainment service includes movie theater, social club and bowling alley.

(Ord. C-6533 § 1 (part), 1988)

21.15.980 Equipment.

"Equipment" means items, generally mechanical, used to perform an activity; it does not include clothing.

(Ord. C-6533 § 1 (part), 1988)

21.15.990 Equipment, garden.

"Garden equipment" means equipment primarily used to maintain landscaped areas (e.g., lawn mowers or edgers); it does not include equipment used in the construction of planters, decks or patios.

(Ord. C-6533 § 1 (part), 1988)

21.15.993 Event center.

"Event center" means an auditorium, convention center, stadium, coliseum, arena, sports facility, racetrack, pavilion, amphitheater, theme park, amusement park, fairgrounds, or other building, collection of buildings, or facility which is used exclusively or primarily for the holding of sporting events, athletic contests, contests of skill, exhibitions, conventions, meetings, spectacles, concerts, or shows, or for providing public amusement or entertainment. Event center is defined here for the purposes of implementing Section 21.41.175 and any other adopted or amended provisions of the Zoning Regulations implementing Section 65863.2 of the California Government Code (aka AB 2097).

(ORD-24-0033 § 2, 2024)

21.15.995 Exterior remodeling.

"Exterior remodeling" means any change to the exterior facade of a building requiring a building permit, such as the changing of windows including frame and mullion systems, the changing of glazing when the new glazing has an exterior daylight reflectance of fifteen percent (15%) or more, or the addition or deletion of awnings, canopies, cornices, and the like.

(Ord. C-7047 § 30, 1992)

21.15.1000 Facing.

"Facing" means orientation of the street frontage of a lot towards lots across the street.

(Ord. C-6533 § 1 (part), 1988)

21.15.1010 Family.

"Family" means two or more persons that occupy a dwelling unit and live together as a single housekeeping unit. A family has established ties and familiarity with each other; jointly uses common areas, interacts with each other, shares meals, household activities and chores, expenses and responsibilities. Membership in a family is fairly stable as opposed to transient. Family members have some control over who becomes a member of the family, and the residential activities of the family are conducted on a non-profit basis. Typically each member of a family has access to all parts of the dwelling unit and the members of the family have close social, economic, and psychological commitments to one another.

(ORD-15-0015, § 1, 2015; Ord. C-6533 § 1 (part), 1988)

21.15.1020 Fast-food restaurant.

See "Restaurant, fast-food".

(Ord. C-6533 § 1 (part), 1988)

21.15.1030 Feasible.

"Feasible" means the ability to construct an improvement on a site from the standpoint of physical capabilities. It does not include economic desirability.

(Ord. C-6533 § 1 (part), 1988)

21.15.1040 Fence height.

"Fence height" means the vertical dimension of a fence measured upward from the grade or from the adjacent top of curbline or alley, whichever is greater.

(Ord. C-6533 § 1 (part), 1988)

21.15.1050 Financial service.

"Financial service" means a commercial land use involved with the exchange of money and services related to the financial system.

(Ord. C-6533 § 1 (part), 1988)

21.15.1054 Fitness Facility.

"Fitness Facility" means a primarily indoor establishment, which may include weight training facilities; swimming or exercise pool; sport courts (basketball, etc.); exercise, yoga, and martial arts classes; sauna, spa or hot tub facilities; and similar activities that are primarily conducted indoors. Fitness Facilities may include locker rooms, snack bars, and childcare for patrons, incidental offices and storage space.

(ORD-18-0030 § 11, 2018)

21.15.1055 Fixed bar.

"Fixed bar" means any counter which can accommodate seating on one (1) side and an area on the opposite side from which tavern or restaurant employees may serve alcoholic beverages exclusively to seated or standing patrons.

(Ord. C-7326 § 2, 1995: Ord. C-7032 § 46, 1992)

21.15.1060 Flammable.

"Flammable" means and includes:

A. A liquid which has a flash point at or below thirty-seven and eight-tenths degrees centigrade (37.8°C) (100°F), as defined by procedures described in Title 49, Code of Federal Regulations, Section 173.115;

B. A gas for which a mixture of thirteen percent (13%) or less, by volume, with air, forms a flammable mixture at atmospheric pressure, or the flammable range with air at atmospheric pressure is wider than twelve percent (12%) regardless of the lower limits. Testing methods described in Title 49, Code of Federal Regulations, Section 173.115, shall be used;

C. A solid which is likely to cause fires due to friction; to retain heat from processing; or which can be ignited under normal temperature conditions and when ignited burns so as to create a serious threat to public health and safety. Normal temperature conditions means temperatures normally encountered in the handling, treatment, storage and disposal of hazardous wastes;

D. A gas, liquid, sludge or solid which ignites spontaneously or in dry or moist air at or below fifty-four and three-tenths degrees centigrade (54.3°C) (130°F) or upon exposure to water;

E. A strong oxidizer.

(Ord. C-6533 § 1 (part), 1988)

21.15.1065 Fleet service/company vehicle operations.

Establishments with fleet service or company vehicles providing transportation services, office equipment repair, appliance or electronic equipment repair, termite and pest control, or commercial or residential building maintenance services at off-site locations, or similar operations utilizing six (6) or more company vehicles.

(Ord. C-7550 § 15, 1998)

21.15.1070 Floor area, gross (GFA).

"Gross floor area (GFA)" means the total area of all floors of a building, as measured to the outside surfaces of exterior walls. Gross floor area includes halls, stairways, elevator shafts, on grade, semi-subterranean, and subterranean garages, lofts and mezzanines, basements, and finished or habitable attics, except as otherwise defined or exempted in a specific Section of this Title. For the purposes of

calculating GFA for all residential dwelling units, outdoor roof deck or balcony areas open to the sky or covered by patio cover or similar structure, when enclosed on all sides by a parapet, solid railing or building wall greater than three feet six inches (3'6") in height, shall be included. However, open areas within the building above normal ceiling height shall not be calculated. See also definitions for floor area ratio and lot coverage.

(ORD-19-0028 § 2, 2019; Ord. C-7326 § 3, 1995: Ord. C-6684 § 13, 1990: Ord. C-6533 § 1 (part), 1988)

21.15.1090 Floor area ratio.

"Floor area ratio" means the numerical value obtained by dividing the gross floor area of a building or buildings located on a lot or parcel of land by the total area of the lot or parcel of land (Figure 15-6). For purposes of calculating Floor Area Ratio:

A. For single-family dwellings, up to seven hundred (700) square feet of garage GFA shall be exempted.

B. For multi-family dwellings, the GFA of all garage areas and parking structures shall be exempted.

C. For all residential dwelling units, outdoor roof deck or balcony areas open to the sky or covered by a patio cover or similar structure, when enclosed on all sides by a parapet, solid railing or building wall greater than three feet six inches (3'6") in height, shall be included. However, open areas within the building above normal ceiling height shall not be calculated.

D. For nonresidential buildings, the GFA of all garage areas and parking structures, utility and elevator core stairwells, and restrooms shall be exempted.

(ORD-19-0028 § 3, 2019; Ord. C-6533 § 1 (part), 1988)

21.15.1100 Fortunetelling.

"Fortunetelling" means a commercial land use involving the foretelling of the future in exchange for financial or other valuable consideration. Fortunetelling shall be limited to uses where the fortune is told through astrology, augury, card or tea reading, cartomancy, clairvoyance, clairaudience, crystal gazing, divination, magic mediumship, necromancy, palmistry, psychometry, phrenology, prophecy, spiritual reading or any similar means. Fortunetelling does not include forecasting based on historical trends or patterns, religious or political dogma, or any of the previously listed arts when presented in an assembly of people who purchase tickets or means in exchange for the presentation at a site licensed for entertainment land uses.

(Ord. C-6533 § 1 (part), 1988)

21.15.1110 Foster family home.

See "group home".

(Ord. C-6533 § 1 (part), 1988)

21.15.1120 Fourplex (four-family dwelling).

"Fourplex" means a building containing four (4) dwelling units.

(Ord. C-6533 § 1 (part), 1988)

21.15.1130 Fraternity house or sorority house.

"Fraternity house" or "sorority house" means a building, or a portion of a building, occupied by a chapter of a regularly organized college fraternity or sorority officially recognized by an educational institution.

(Ord. C-6533 § 1 (part), 1988)

21.15.1140 Frontage.

"Frontage" means the length of that portion of a lot abutting a street.

(Ord. C-6533 § 1 (part), 1988)

21.15.1150 Front lot line.

"Front lot line" is defined as follows:

A. **Corner Lot.** On a corner lot, the shortest line separating the lot from an abutting street. When two (2) or more recorded lots or fractional lots are developed together, the Zoning Administrator shall determine the front lot line as that most consistent with development patterns on surrounding lots.

B. **Interior Lot.** On an interior lot, the lot line between the lot and the street.

C. **Double Frontage.** On a lot fronting on two (2) streets (other than a corner lot), both lot lines abutting the streets shall be considered front lot lines.

D. **Triangular or Gore-Shaped.** On triangular or gore-shaped lots, any lot line separating the lot from an abutting street, and which is essentially a continuation of the front lot lines of abutting lots.

E. **Multiple Frontage.** On a lot fronting on three (3) or more streets, the Zoning Administrator shall determine the front lot line based on traffic patterns and the appropriateness of the site plan.

F. **No Frontage.** On a lot with no street frontage, the front lot line shall be the shortest lot line abutting any public property other than an alley. Wherever no public property abuts the lot, the front lot line shall be the shortest line abutting an alley.

(Ord. C-6533 § 1 (part), 1988)

21.15.1160 Front yard, required.

"Required front yard" means the area between the front lot line and the required front setback line extending across the entire width of the lot (Figure 15-3), as prescribed for a given land use district.

(Ord. C-6533 § 1 (part), 1988)

21.15.1170 Garage.

"Garage" means an accessory building, or portion of a building, used for the parking or temporary storage of automobiles for the occupants of the premises. A garage (except a parking structure) shall be enclosed on all sides and possess a fully closing door at the point of vehicular access.

(Ord. C-6533 § 1 (part), 1988)

21.15.1180 General Plan.

"General Plan" means the adopted General Plan of the City of Long Beach.

(Ord. C-6533 § 1 (part), 1988)

21.15.1190 Grade.

"Grade" is defined as follows:

A. The average elevation at the front top of curbline.

B. If the average elevation of the rear property line differs from that of the front top of curb by five feet (5′) or more, then grade shall be the plane connecting the average front elevation and the average rear elevation.

C. In flood hazard areas, grade means the elevation at flood hazard level or grade as defined above, whichever is the highest point.

(Ord. C-6533 § 1 (part), 1988)

21.15.1200 Group home.

"Group home" means any residential care facility for six (6) or fewer persons who are mentally disordered or otherwise handicapped or supervised. A group home must be licensed by the State under the provisions of Chapter 2 (commencing with Section 1400) of Division 2 of the Health and Safety Code. Group home does not include any facility for wards of the juvenile court.

(Ord. C-6533 § 1 (part), 1988)

21.15.1205 Guardrail.

"Guardrail" means a protective railing required by the Uniform Building Code, designed to withstand the pressure specified in the Uniform Building Code. The height shall not exceed the minimum height required in the Uniform Building Code. "Open guardrail" means a guardrail that is visibly open (consisting of eighty percent (80%) of railing area to be open). A visually transparent wind screen shall be considered as open guardrail.

(Ord. C-6533 § 1 (part), 1988)

21.15.1210 Guest parking.

"Guest parking" means parking spaces provided with a residential unit for intermittent use by visitors.

(Ord. C-6533 § 1 (part), 1988)

21.15.1220 Guestroom.

"Guestroom" means any rented or leased room which is used or designed to provide sleeping accommodations for one (1) or more guests in apartments, hotels, motels, private clubs, lodges, and fraternal organizations. In a suite of rooms, each room that provides access to a common hall or direct access to the outside area shall be considered as one (1) guestroom.

(Ord. C-6533 § 1 (part), 1988)

21.15.1230 Halfway house.

See "Residential care facility".

(Ord. C-6533 § 1 (part), 1988)

21.15.1240 Handicapped housing.

"Handicapped housing" means any housing which is designed and physically improved to accommodate physically handicapped persons. Handicapped housing does not include residential care facility.

(Ord. C-6533 § 1 (part), 1988)

21.15.1250 Hazardous material.

"Hazardous material" means any substance or mixture of substances which is toxic, corrosive, flammable, an irritant, a strong sensitizer; or which generates pressure through decomposition, heat or other means, if such substance or mixture of substances may cause substantial injury, serious illness or harm to humans, domestic livestock or wildlife. Hazardous material includes extremely hazardous material.

(Ord. C-6533 § 1 (part), 1988)

21.15.1260 Hazardous waste.

"Hazardous waste" means any waste material or mixture of wastes which is toxic, corrosive, flammable, an irritant, a strong sensitizer; or which generates pressure through decomposition, heat or other means, if such a waste or mixture of wastes may cause substantial injury, serious illness or harm to humans, domestic livestock or wildlife. Hazardous waste includes extremely hazardous waste.

(Ord. C-6533 § 1 (part), 1988)

21.15.1270 Hazardous waste area.

"Hazardous waste area" means any area where hazardous wastes are stored, mixed, handled, treated, discarded or disposed of.

(Ord. C-6533 § 1 (part), 1988)

21.15.1280 Hazardous waste facility.

"Hazardous waste facility" means a facility which handles, stores, treats or disposes of a hazardous waste and which contains at least one (1) hazardous waste area. Hazardous waste facility does not include a facility using a biological process of the property of a producer treating oil, its products and water, and producing an effluent which is continuously discharged to navigable waters in compliance with a permit issued pursuant to Section 402 of the Federal Water Pollution Control Act (33 USC 1342).

(Ord. C-6533 § 1 (part), 1988)

21.15.1290 Hazardous waste facility, off-site.

"Off-site hazardous waste facility" means an operation involving handling, treatment, storage or disposal of a hazardous waste in one (1) or more of the following situations:

A. The hazardous waste is transported via a commercial railroad, a public road or public waters, where adjacent land is not owned by, or leased to, the producer of the waste.

B. The hazardous waste is at a site which is not owned by, or leased to, the producer of the waste.

C. The hazardous waste is at a site which receives hazardous waste from more than one (1) producer.

(Ord. C-6533 § 1 (part), 1988)

21.15.1300 Hazardous waste facility, on-site.

"On-site hazardous waste facility" means an operation involving handling, treatment, storage or disposal of hazardous waste on land owned by, or leased to, a waste producer, and which received hazardous waste produced only by that producer. An operation that occurs after waste is transported by a commercial railroad, or on public waters or on a public road shall be considered an on-site operation only if the producer of the waste owns at least ninety percent (90%) of the linear frontage of the route traveled by the waste, or if the disposal site and the area where the hazardous wastes are generated are on the same continuous property.

(Ord. C-6533 § 1 (part), 1988)

21.15.1310 Hazardous waste producer.

"Hazardous waste producer" means any use which results in the generation of hazardous waste.

(Ord. C-6533 § 1 (part), 1988)

21.15.1320 Hedge.

"Hedge" means any cultivated plant growth which is sufficiently dense along a line as to obstruct passage of light, air or solid objects; it does not constitute a fence or garden wall.

(Ord. C-6533 § 1 (part), 1988)

21.15.1330 Height of building.

A. The height of a building with a sloped roof is the vertical distance above "grade", as defined in Section 21.15.1190, to the midpoint height of the highest sloped roof. A sloped roof may include, but is not limited to, a shed, hip, gable, gambrel, mansard or curved roof as shown on Figure 15-5 and is defined as a slanting surface covering the top of the structure. The measurement of this vertical distance is further described in Section 21.15.1335.

B. The height of a building with a flat roof is the vertical distance above "grade", as defined in Section 21.15.1190, to the top of the railing, parapet or coping (whichever is higher). Examples of buildings with flat roofs are shown on Figure 15-5, and include a building with a mansard parapet. The height of a building with a mansard parapet is the vertical distance above "grade", as defined in Section 21.15.1190, to the top of the railing, parapet or coping (whichever is higher).

C. The height of a stepped or terraced building is the maximum height of any segment of the building. The height of any dormer shall be considered the height of a separate roof. The highest roof or roof segment shall be utilized in determining compliance with the height limit.

D. A sloped roof that includes an open roof deck that does not exceed ten percent (10%) of the footprint of the principal building is considered a sloped roof for purposes of measuring height. If the roof deck exceeds ten percent (10%) of the footprint of the principal building, the roof deck shall be considered a flat roof and building height shall be measured to the top of the railing, parapet, or coping (whichever is higher).

E. Elevator and mechanical equipment penthouses shall not be included in the measurement of height for commercial buildings.

(Ord. C-7776 § 1, 2001: Ord. C-7729 § 1, 2001: Ord. C-6933 § 3, 1991: Ord. C-6822 § 1, 1990: Ord. C-6533 § 1 (part), 1988)

21.15.1335 Height to midpoint of sloped roof.

"Height to midpoint of sloped roof" means the middle of the distance between the top of the ridge lines of the roof and the bottom of the ceiling of the highest story or mezzanine of the building. If the highest story or mezzanine has an open-beamed or cathedral ceiling, then height shall be measured from the top of the ridge to the bottom of the top plate of the wall supporting the roof. It is the intent of this provision that the sloped roof should not allow any greater volume in the building than a flat-roofed building with equal measured height.

(Ord. C-6822 § 2, 1990: Ord. C-6533 § 1 (part), 1988)

21.15.1338 High crime.

"High crime" means a crime rate in a crime reporting district that is twenty percent (20%) above the City-wide average for all crimes.

(Ord. C-7032 § 47, 1992)

21.15.1340 Highway.

"Highway" means any public right-of-way indicated as a highway on the transportation element of the General Plan.

(Ord. C-6533 § 1 (part), 1988)

21.15.1350 Home occupation.

"Home occupation" means an accessory activity of a nonresidential nature which is performed within a dwelling unit or an accessory structure to the unit. The principal use of the dwelling unit must be a residential use, and the home occupation must be incidental to the residential use of the dwelling unit.

(Ord. C-6533 § 1 (part), 1988)

21.15.1360 Horse.

"Horse" shall also include mule, burro, pony, jack, hinny, and all other quadrupeds of the genus equus.

(Ord. C-6533 § 1 (part), 1988)

21.15.1370 Hospital.

"Hospital" means an institutional land use consisting of a facility licensed by the State Department of Public Health for the provision of clinical, temporary or emergency service of a medical, obstetrical or surgical nature to human patients, including overnight care of patients.

(Ord. C-6533 § 1 (part), 1988)

21.15.1380 Hotel.

"Hotel" means a commercial land use for the rental of six (6) or more guestrooms or suites to primarily transient occupants for a period of not more than thirty (30) consecutive days. Hotel is distinguished from motel by having the entry to the guestrooms from a common interior corridor. (Also see definition for "bed and breakfast inn", "inn", "motel" and "residential care facility".)

(Ord. C-7047 § 1, 1992: Ord. C-6595 § 6, 1989: Ord. C-6533 § 1 (part), 1988)

21.15.1390 Household income levels.

The following household income levels are defined for purposes of the Zoning Regulations:

A. Acutely low-income household. "Acutely low-income household" means households whose income does not exceed fifteen percent (15%) of the area median income as published annually by the California Department of Housing and Community Development (HCD), adjusted for the actual number of persons in the household.

B. Extremely low-income household. "Extremely low-income household" means households whose income does not exceed thirty percent (30%) of the area median income as published annually by the California Department of Housing and Community Development (HCD), adjusted for the actual number of persons in the household.

C. Very low-income household. "Very low-income household" means households whose income does not exceed fifty percent (50%) of the area median income as published annually by the California Department of Housing and Community Development (HCD), adjusted for the actual number of persons in the household.

D. Low-income household. "Low-income household" means households whose income does not exceed eighty percent (80%) of the area median income as published annually by the California Department of Housing and Community Development (HCD), adjusted for the actual number of persons in the household.

E. Moderate-income household. "Moderate-income household" means households whose income does not exceed one hundred twenty percent (120%) of the area median income as published annually by the California Department of Housing and Community Development (HCD), adjusted for the actual number of persons in the household.

(ORD-26-0017 § 21, 2026)

21.15.1395 Household pet.

See "Pet, household".

(Ord. C-6533 § 1 (part), 1988)

21.15.1400 Housing Authority.

"Housing authority" means the Housing Authority of the City of Long Beach, a public body functioning pursuant to the Housing Authorities Law of the State (Chapter 1 of Part 2 of Division 24 of the California Health and Safety Code).

(ORD-26-0017 § 3, 2026; Ord. C-6533 § 1 (part), 1988)

21.15.1410—21.15.1430 Reserved.

Editor's note—ORD-26-0017 §§ 27—29, adopted June 16, 2026, repealed §§ 21.15.1410—21.15.1430, which pertained to definitions of low-, moderate- and very low-cost housing, and derived from Ord. C-6533 § 1 (part), 1988.

21.15.1440 Illumination, indirect.

"Indirect illumination" means illumination of a sign or other structure or feature by an internal or external light source which is shielded from persons viewing the structure or feature. Shielding shall consist of hoods or translucent material.

(Ord. C-6533 § 1 (part), 1988)

21.15.1448 Incentive (density bonus).

"Incentive" and "concession," for the purposes of density bonus administration, means a modification or reduction of a zoning development standard or objective design standard that results in identifiable and actual cost reductions to a development project that is the subject of a density bonus request. The terms "incentive" and "concession" may be used interchangeably for purposes of this definition. An incentive or concession shall not be used to reduce minimum life safety standards, building standards approved by the California Building Standards Commission, or standards of the Long Beach Building Standards Code.

(ORD-26-0017 § 22, 2026)

21.15.1450 Incentive zoning.

"Incentive zoning" means a system under which a property developer is granted an increase in permitted density in exchange for providing low and moderate income housing pursuant to Section 65915 et seq. of the California Government Code.

(Ord. C-6533 § 1 (part), 1988)

21.15.1452 Inclusionary housing project.

"Inclusionary housing project" means a project conforming to the requirements of Chapter 21.67 of the Zoning Regulations.

(ORD-26-0017 § 23, 2026)

21.15.1454 Inclusionary housing unit.

"Inclusionary housing unit" means a residential dwelling unit required by Chapter 21.67 to be affordable at a specified income level and subject to an affordable housing regulatory agreement.

(ORD-26-0017 § 24, 2026)

21.15.1460 Industrial.

"Industrial" means a category of land use comprised of those activities necessary to convert natural resources into finished products. These activities include all resource extracting, resource processing, manufacturing, assembling, storage, transshipping and wholesaling that precede the arrival of goods at a retail land use.

(Ord. C-6533 § 1 (part), 1988)

21.15.1465 Inn.

"Inn" means a commercial land use for the rental of five (5) or fewer guestrooms, suites or dwelling units primarily to transient occupants for a period of not more than thirty (30) consecutive days.

(Ord. C-6595 § 22, 1989)

21.15.1470 Institutional use.

"Institutional use" means a category of land use characterized by emphasis upon educational, cultural, or public service activities whether for profit or of a nonprofit nature.

(ORD-18-0030 § 2, 2018; Ord. C-6533 § 1 (part), 1988)

21.15.1475 Interim housing.

"Interim housing" means any facility or site used or intended to be used as a place where sleeping or rooming accommodations are furnished on a temporary basis to persons who lack permanent housing. Interim housing facility includes, but is not limited to, emergency shelters, transitional housing, and bridge housing. Interim Housing uses may include accessory uses such as ancillary offices, personal storage, or amenities for pets.

(ORD-20-0026 § 15, 2020)

21.15.1480 Interior lot.

See "Lot, interior".

(Ord. C-6533 § 1 (part), 1988)

21.15.1490 Irritant.

"Irritant" means any non-corrosive substance which upon immediate, prolonged or repeated contact with normal living tissue will induce a local inflammatory reaction.

(Ord. C-6533 § 1 (part), 1988)

21.15.1500 Junk.

"Junk" means any worn-out, cast-off or discarded article or material. Junk includes any vehicle or machinery being kept for use as parts or awaiting disposal.

(Ord. C-6533 § 1 (part), 1988)

21.15.1510 Junk or salvage yard.

"Junk or salvage yard" means property used to break up, dismantle, sort, store, distribute or sell any scrap, waste material or junk. It does not include vehicle impound yards.

(Ord. C-6533 § 1 (part), 1988)

21.15.1520 Kennel.

"Kennel" means any property where five (5) or more animals, other than fish, birds or horses, are kept, maintained, bred or raised for sale, breeding, participating in a commercial enterprise, or personal enjoyment.

(Ord. C-6533 § 1 (part), 1988)

21.15.1530 Key lot.

See "Lot, key".

(Ord. C-6533 § 1 (part), 1988)

21.15.1540 Kitchen.

"Kitchen" means any room or portion thereof containing facilities designed or used for the preparation of food, including a sink and stove, oven, microwave oven, range and/or hot plate.

(Ord. C-6533 § 1 (part), 1988)

21.15.1550 Landscaping.

"Landscaping" means changing, rearranging or adding to the original vegetation or scenery of a piece of land to produce an aesthetic effect appropriate for the use of the land. It may include reshaping the land by moving the earth, as well as preserving the original vegetation or adding vegetation. Landscaping does not include artificial plant material.

(Ord. C-6533 § 1 (part), 1988)

21.15.1555 Landscaping plan.

"Landscaping plan" means a plan which indicates the type, size and location of vegetative and accent material proposed for the landscaping of a site. Landscaping plan includes all irrigation and other devices necessary to maintain landscaping.

(Ord. C-6533 § 1 (part), 1988)

21.15.1560 Laundry.

"Laundry" or "Laundromat" means an establishment to dry clean and/or wash and dry clothes brought in and carried away by the customer. This may include self-service or coin-operated facilities.

(ORD-18-0025 § 3, 2018; Ord. C-6533 § 1 (part), 1988)

21.15.1570 Laundry, industrial.

"Industrial laundry" means an establishment where large quantities of clothes are washed and/or ironed but are collected and delivered primarily by laundry employees.

(Ord. C-6533 § 1 (part), 1988)

21.15.1575 Liquor store.

"Liquor store" means any business selling general alcoholic beverages, also known as sale of distilled spirits or hard liquor, for off-premises consumption under a "Type 21 License" of the California Alcoholic Beverage Control Board. Liquor store does not include a business selling only beer and/or wine for off-premises consumption.

(Ord. C-6684 § 3, 1990)

21.15.1576 Live-Work unit.

A unit that combines a work space and incidental residential occupancy by a single household in a structure that has been constructed for such use or converted from commercial or industrial use and structurally modified to accommodate residential and work activities in compliance with the California Building Code.

(ORD-18-0025 § 12, 2018)

21.15.1578 Loading space.

"Loading space" means an off-street space, meeting the development standards as established in the parking standards for a zoning district, on the same lot or parcel with a building or use for the temporary parking of one vehicle while loading or unloading persons, merchandise or materials. See also Section 21.15.1990 "Parking space."

(ORD-24-0033 § 3, 2024)

21.15.1580 Lodginghouse.

"Lodginghouse" means a house with three (3) or more guestrooms where lodging is provided for compensation and where meals are not served.

(Ord. C-6533 § 1 (part), 1988)

21.15.1590 Lot.

"Lot" means an area of land, the boundaries of which have been established in conformance with the State Subdivision Map Act, and which has either been recorded via a final tract map or a "certificate of compliance" on record with the Los Angeles County Recorder.

(Ord. C-6533 § 1 (part), 1988)

21.15.1600 Lot area.

"Lot area" means the total horizontal area within the lot lines of a lot, excluding lot lines that may extend into Alamitos Bay or Los Cerritos Channel.

(Ord. C-6533 § 1 (part), 1988)

21.15.1610 Lot, corner.

"Corner lot" means a lot situated at the intersection of two (2) or more streets (Figure 15-1).

(Ord. C-6533 § 1 (part), 1988)

21.15.1620 Lot coverage.

"Lot coverage" means the percentage of the area of the lot covered by a building at all levels. This includes the perimeter of the building as viewed from a plan view, plus the area of all accessory buildings and structures, including garages not fully below grade (unless exempted—See Section 21.31.225). Lot coverage does not include any open projections such as balconies and eaves. For the purpose of calculating Lot Coverage:

A. For single-family dwellings, up to seven hundred (700) square feet of garage GFA may be exempted.

B. For multi-family dwellings and non-residential buildings, the GFA of all garage areas and parking structures may be exempted.

(ORD-19-0028 § 4, 2019; Ord. C-7032 § 6, 1992: Ord. C-6533 § 1 (part), 1988)

21.15.1630 Lot depth.

"Lot depth" means the average distance between the front and rear lot line (Figure 15-2).

(Ord. C-6533 § 1 (part), 1988)

21.15.1640 Lot, interior.

"Interior lot" means a lot other than a corner lot (Figure 15-1).

(Ord. C-6533 § 1 (part), 1988)

21.15.1650 Lot, key.

"Key lot" means the first interior lot to the rear of a reversed corner lot which is not separated therefrom by an alley (Figure 15-1).

(Ord. C-6533 § 1 (part), 1988)

21.15.1660 Lot line, front.

See "Front lot line".

(Ord. C-6533 § 1 (part), 1988)

21.15.1670 Lot line, rear.

See "Rear lot line".

(Ord. C-6533 § 1 (part), 1988)

21.15.1680 Lot line, side.

See "Side lot line".

(Ord. C-6533 § 1 (part), 1988)

21.15.1690 Lot, reversed corner.

"Reversed corner lot" means a corner lot in which the side lot line is substantially a continuation of the front lot line of the nearest lot to its rear (Figure 15-1).

(Ord. C-6533 § 1 (part), 1988)

21.15.1700 Lot, through.

"Through lot" means a lot having frontage on two (2) parallel or approximately parallel streets (Figure 15-1).

(Ord. C-6533 § 1 (part), 1988)

21.15.1710 Lot width.

"Lot width" means the horizontal distance between the midpoints of the side lot lines, measured at right angles to the line measuring lot depth (Figure 15-2).

(Ord. C-6533 § 1 (part), 1988)

21.15.1720 Manufactured housing.

"Manufactured housing" means a structure, transportable in one or more sections, which, in the traveling mode, is eight (8) body feet or more in width, or forty (40) body feet or more in length, or, when erected on site, is three hundred twenty (320) or more square feet, and which is built on a permanent chassis and designed to be used as a dwelling with or without a permanent foundation when connected to the required utilities, and includes the plumbing, heating, air conditioning, and electrical systems contained therein; except that such term shall include any structure which meets all the requirements of this definition except the size requirements and with respect to which the manufacturer voluntarily files a certification and complies with the standards established under California Health and Safety Code, Division 13, Part 2. "Manufactured home" includes a mobile home subject to the National Manufactured Housing Construction and Safety Act of 1974 (42 U.S.C., Sec. 5401 et seq.).

(ORD-17-0031 § 4, 2017; Ord. C-6533 § 1 (part), 1988)

21.15.1725 Massage establishment.

"Massage establishment" means any business that offers massage therapy in exchange for compensation, as more particularly defined in Subsection 5.58.020.L of this Code. "Massage establishment" includes massage as a primary use, or as an accessory use for a hotel over one hundred (100) rooms, physician, chiropractor, health club, beauty salon, nail salon, and the like.

(ORD-18-0018 § 3, 2018; Ord. C-6595 § 23, 1989)

21.15.1730 Median income.

"Median income" means the most recent median income established by the United States Department of Housing and Urban Development (HUD) for the Los Angeles/Long Beach Standard Metropolitan Statistical area, as adjusted for the number of members of the household. For purposes of determining very low, low and moderate cost housing, the household size shall be correlated to housing sizes as follows:

Bedrooms In Unit	Persons In Household
0	1
1	2
2	3 or 4
3	5 or 6
4 or more	7 or more

(Ord. C-6533 § 1 (part), 1988)

21.15.1740 Medical office.

"Medical office" means a commercial land use involved in the practice of medicine (not including psychiatric medicine or psychology services), but not including the overnight care of a patient.

(Ord. C-6533 § 1 (part), 1988)

21.15.1750 Merchandise mall.

"Merchandise mall" means a retail commercial use in which six (6) or more retail sales businesses are conducted inside a building which has no permanent floor-to-ceiling walls separating the retail uses from each other. This term includes "bazaar", "indoor flea market", "indoor swap meet", "mini-mall", "mercantile center" and other similar words and phrases used to describe a merchandise mall.

(Ord. C-6533 § 1 (part), 1988)

21.15.1755 Mezzanine.

"Mezzanine" shall be defined in accordance with the edition of the Uniform Building Code currently in effect in the City of Long Beach.

(Ord. C-6533 § 1 (part), 1988)

21.15.1755.5 Microenterprise Home Kitchen Operation (MEHKO).

"Microenterprise Home Kitchen Operation (MEHKO)." A Microenterprise Home Kitchen Operation is an enterprise at a private home where food products are prepared, served, or packaged for sale to consumers. A MEHKO is subject to all State of California Health and Safety Code regulations (California Health and Safety Code § 113825).

(ORD-26-0009 § 7, 2026)

21.15.1756 Micro-Unit.

"Micro-Unit" is a dwelling unit that is not subject to the density limitations or minimum unit size and unit mix requirements of the underlying zoning and which contains a full bathroom, kitchen facilities, and built-in storage within the Micro-Unit.

(ORD-20-0048 § 1, 2020)

21.15.1760 Mixed use.

"Mixed use" means a building, structure or premises occupied by or used by two (2) or more principal types of use, any of which is permitted in a district independent of other uses.

(Ord. C-6533 § 1 (part), 1988)

21.15.1764 Mobile food facility.

"Mobile food facility" means any vehicle (as defined in the California Vehicle Code) from which food, beverage, or other consumable product is offered for sale to the public. A mobile food facility shall operate in conjunction with a commissary or other permanent food facility for support. For the purpose of this proposed ordinance, mobile food facilities are distinct from non-motorized sidewalk vending, which is regulated by the California Safe Sidewalk Vending Act (SB 946) and the City's Sidewalk Vending Ordinance (LBMC Chapter 5.73).

(ORD-26-0012 § 9, 2026)

21.15.1765 Mobile Food Truck.

Refer to "Mobile food facility".

(ORD-26-0012 § 1, 2026; Ord. C-7607 § 15, 1999)

21.15.1770 Mobile home.

See "Manufactured housing."

(ORD-17-0031 § 5, 2017; Ord. C-6533 § 1 (part), 1988)

21.15.1780 Mobile home park.

"Mobile home park" means an area or tract of land where one (1) or more spaces for the occupancy by a mobile home are provided, rented or offered for rent. Mobile home park does not include travel trailer park.

(Ord. C-6533 § 1 (part), 1988)

21.15.1790 Modular housing.

"Modular housing" means a dwelling unit manufactured in a factory and capable of transport to a site by being carried on a trailer or upon wheels, in whole or in modular parts, and which is placed on a permanent foundation. Modular housing complies with the Building Code definition of a building.

(Ord. C-6533 § 1 (part), 1988)

21.15.1792 Money orders.

"Money order" means a certificate issued that allows the stated payee to receive cash on-demand. A money order functions much like a check, in that the person who purchased the money order may stop payment.

(ORD-13-0018, § 12, 2013)

21.15.1793 Money transfers.

"Money transfer" means a service that allows users to transfer funds between personal accounts.

(ORD-13-0018, § 13, 2013)

21.15.1795 Mortgage brokers.

"Mortgage broker" means an individual or company that arranges mortgage financing between a borrower and a lender.

(ORD-13-0018, § 14, 2013)

21.15.1797 Mortuaries, Cremation and Interment Services.

Mortuaries, Cremation and Interment Services refers to establishments primarily engaged in the provision of services involving the care, preparation or disposition of human dead other than in cemeteries. The following are Funeral, Cremation, and Interment Services use types:

A. Cremating. Crematory services traditionally involving the purification and reduction of the human body by fire. Typical uses include crematories or crematoriums. Reduction of human body remains by chemical or other means can also be considered cremations.

B. Interring. Interring services involving the keeping of human bodies other than buried in cemeteries. Typical uses include columbaria, mausoleums or cineraria.

C. Mortuary. Undertaking or mortuary services such as preparing the dead for interring or burials, and arranging and managing funerals, memorials, viewings or other types of remembrance ceremonies. Beyond humans, remains of family pets could be included. Typical uses include mortuaries or funeral homes.

(ORD-13-0022, § 5, 2013)

21.15.1800 Motel.

"Motel" means a commercial land use for the rental of six (6) or more guestrooms or suites to primarily transient occupants for a period of not more than thirty (30) consecutive days. Motel is distinguished from hotel by having entry individually and independently from outside the building or buildings. Motel also includes tourist court, motor court, motor lodge or any other designation intended to identify the premises as providing rental or overnight accommodations primarily to motorists.

(Ord. C-7047 § 2, 1992: Ord. C-6533 § 1 (part), 1988)

21.15.1810 Motor vehicle.

"Motor vehicle" means a machine capable of self-propulsion, with or without human guidance, whether for the performance of work or as a mode of transportation.

(Ord. C-6533 § 1 (part), 1988)

21.15.1820 Motorcycle.

"Motorcycle" means a two-wheeled or three-wheeled motor vehicle, generally with a saddle seat and a handlebar steering device, including, but not limited to, mopeds and sidecars.

(Ord. C-6533 § 1 (part), 1988)

21.15.1830 Municipal Code.

"Municipal Code" means the Long Beach Municipal Code.

(Ord. C-6533 § 1 (part), 1988)

21.15.1835 Mural.

"Mural" is used in regard to signs and means a graphical image, with or without text, that covers all or a portion of a building facade, and does not contain any advertising message, but consists of an artistic representation of a subject not for the purposes of creating a sign or billboard, as defined in this Title.

(ORD-12-0006, § 7, 2012)

21.15.1840 Natural grade.

"Natural grade" means the surface of the ground prior to grading for development.

(Ord. C-6533 § 1 (part), 1988)

21.15.1850 New Construction.

"New construction" means structures for which the "start of construction" was commenced on or after the effective date of this ordinance.

(Ord. C-6533 § 1 (part), 1988)

21.15.1855 Nightclub.

"Nightclub" means any bar, cocktail lounge, dance club or similar establishment with an entertainment permit for live amplified music and dancing in conjunction with alcoholic beverage sales operating under a Type 48 Department of Alcoholic Beverage Control license (On-sale General—Public Premises). This also includes bars, taverns, karaoke bars and similar establishments with an entertainment permit for live amplified music and dancing where any food service is subordinate to the sale of alcoholic beverages.

(ORD-15-0002 § 2, 2015)

21.15.1859 Noise ordinance.

"Noise ordinance" means Chapter 8.80 of the Long Beach Municipal Code.

(ORD-18-0025 § 13, 2018)

21.15.1860 Nonconformity.

"Nonconformity" means a building, structure, parking lot use, sign or portion thereof which was lawfully established but which, due to the application of this Title, no longer conforms to the regulations of the zone in which it is located, as defined in this Title. "Nonconformity" includes the term "nonconforming."

(Ord. C-6533 § 1 (part), 1988)

21.15.1870 Nuisance.

"Nuisance" means anything that interferes with the use or enjoyment of property, endangers personal health or safety or is offensive to the senses.

(Ord. C-6533 § 1 (part), 1988)

21.15.1880 Nursing home.

See "Convalescent hospital."

(Ord. C-6533 § 1 (part), 1988)

21.15.1890 Office.

"Office" means a place where business is transacted or a service is provided, with an emphasis on recordkeeping, clerical and administrative activities.

(Ord. C-6533 § 1 (part), 1988)

21.15.1900 Open corridor.

"Open corridor" means an area providing access to a building or unit from a stairway or elevator, on the second story or above, and which is open on one (1) or more sides.

(Ord. C-6533 § 1 (part), 1988)

21.15.1910 Open space, usable.

See "Usable open space."

(Ord. C-6533 § 1 (part), 1988)

21.15.1920 Outdoor advertising.

See "Billboard."

(Ord. C-6533 § 1 (part), 1988)

21.15.1930 Overlay zone.

"Overlay zone" means a set of zoning requirements that is described in the text of the Zoning Regulations, is mapped and is imposed in addition to those requirements of the underlying district.

(Ord. C-6533 § 1 (part), 1988)

21.15.1940 Owner of property.

"Owner of property" means the owner of record on any parcel of real property as designated on the County Assessor's tax roll, or a holder of a subsequently recorded deed to the property.

(Ord. C-6533 § 1 (part), 1988)

21.15.1950 Owner's authorized agent.

"Owner's authorized agent" means any person authorized to act for the owner of a property by virtue of a notarized statement of authorization, a proof of contract to purchase or a lease to the property.

(Ord. C-6533 § 1 (part), 1988)

21.15.1960 Parcel.

"Parcel" means an area of land, the boundaries of which have not been legally established in conformance with the State Subdivision Map Act. Parcel is also referred to as a fractional lot.

(Ord. C-6533 § 1 (part), 1988)

21.15.1970 Parking.

"Parking" means the stopping or stationary location of a vehicle without the operator present. Parking for seventy-two (72) hours or more shall be deemed storage.

(Ord. C-6533 § 1 (part), 1988)

21.15.1980 Parking service.

"Parking service" means a commercial land use providing parking spaces for rent.

(Ord. C-6533 § 1 (part), 1988)

21.15.1990 Parking space.

"Parking space" means an area on the same lot or parcel with a building or use meeting the development standards as established in the parking standards for a zoning district, which is accessible and available for the parking of one vehicle. See also Section 21.15.1578 "Loading space."

(ORD-24-0033 § 12, 2024; Ord. C-6533 § 1 (part), 1988)

21.15.2000 Parking structure.

"Parking structure" means a garage with more than one (1) level of parking.

(Ord. C-6533 § 1 (part), 1988)

21.15.2005 Parsonage.

"Parsonage" means an accessory residential use on the same property and occupied by employees of a church or other religious assembly or institutional use who provide spiritual guidance to members.

(ORD-18-0030 § 3, 2018; Ord. C-6895 § 29, 1991)

21.15.2007 Passive park.

"Passive park" means a plot of land that is landscaped, maintained as open space, serves a neighborhood, and is used as an informal gathering place for relaxation and play. Passive park includes, but is not limited to, parquets, urban oases, and small space sites. Permitted improvements and features include, but are not limited to, walking paths, sitting areas, play equipment, tables, fire pits, barbecues, public restrooms, landscaped and natural open spaces, habitat reserves, lakes, streams, ponds and lagoons.

(ORD-10-0019 § 1, 2010; ORD-08-0029 § 1, 2008: Ord. C-7378 § 23, 1995)

21.15.2008 Pawn shop.

"Pawn shop" means and includes any use where a person, other than banks, trust companies, or bond brokers, who may otherwise be regulated by law and authorized to deal in commercial papers, shares of

stock, bonds and other certificates of value, who keeps a pawn office, or engages in, or carries on the business of receiving jewelry, precious stones, valuables, firearms, clothing or personal property, or any other article or articles in pledge for loans, or as security, or in pawn for the repayment of monies, and exacts an interest for such loans, or who purchases articles or personal property and agrees to resell such articles so purchased to the vendors thereof, or their assigns, at prices agreed upon at or before the time of such purchases, respectively. Pawn shop also includes any use engaging in cash for gold and the like.

(ORD-13-0026 § 2, 2013; ORD-13-0018 § 15, 2013)

21.15.2009 Pay day loans.

"Pay day loans" offer a transaction whereby a person defers depositing a customer's personal check until a specific date, pursuant to a written agreement, as provided by California Financial Code Section 23035. Personal check includes the electronic equivalent of a personal check. Pay day loan (Deferred Deposit) businesses are regulated by the State of California, Department of Corporations, and do not include consumer loans or commercial loans.

(ORD-13-0018 § 16, 2013)

21.15.2010 Permitted use.

"Permitted use" means a use by right which is specifically authorized in a particular zoning district. It is contrasted with conditional uses, which are authorized only if certain requirements are met following review and approval.

(Ord. C-6533 § 1 (part), 1988)

21.15.2020 Personal service.

"Personal service" means a commercial land use involved in an activity applied to an individual or individual's possessions in exchange for financial or other considerations.

(Ord. C-6533 § 1 (part), 1988)

21.15.2030 Pet, household.

"Household pet" means an animal customarily kept in a house, such as dogs, cats, fish, caged birds, rabbits and the like. No wild, exotic, or livestock animals shall be considered household pets.

(Ord. C-7780 § 1, 2001: Ord. C-6533 § 1 (part), 1988)

21.15.2040 Pet shop.

"Pet shop" means any premises primarily used for the sale of household pets.

(Ord. C-6533 § 1 (part), 1988)

21.15.2050 Planning Commission.

"Planning Commission" means the City Planning Commission.

(Ord. C-6533 § 1 (part), 1988)

21.15.2060 Planning Officer.

"Planning Officer" means an employee of the Planning Bureau of the Department of Planning and Building with the position of Division Manager or above.

(Ord. C-6533 § 1 (part), 1988)

21.15.2070 Plat.

"Plat" means a map, generally of a subdivision, showing the location, boundaries, and ownership changes of lot divisions. To plat means to subdivide.

(Ord. C-6533 § 1 (part), 1988)

21.15.2075 Playground.

"Playground" means a plot of land used for and typically equipped with play equipment (swings, slides, sand box, or play sets) for recreational purposes. A playground includes but is not limited to tot-lots and small playgrounds. Accessory buildings and playfields are not permitted.

(Ord. C-7378 § 24, 1995)

21.15.2080 Plot.

"Plot" is an indefinite term usually referring to a piece of usable property. Plot often is used synonymously, and mistakenly, with parcel or site to mean plat.

(Ord. C-6533 § 1 (part), 1988)

21.15.2090 Plot plan.

"Plot plan" means a diagram of a lot, as seen from above, showing the outline of all structures on the lot and indicating the distance of the structures from the borders of the lot. It is similar to a site plan.

(Ord. C-6533 § 1 (part), 1988)

21.15.2100 Plumbing facilities.

"Plumbing facilities" means any appliance or fixture attached to a potable water line, gas line, sewage line or plumbing waste line.

(Ord. C-6533 § 1 (part), 1988)

21.15.2110 Police power.

"Police power" means the authority of government to exercise controls to protect the public health, safety, morals and general welfare. Zoning is one form of police power control.

(Ord. C-6533 § 1 (part), 1988)

21.15.2120 Poolhall.

"Poolhall" means a primary commercial entertainment land use containing one (1) or more pool or billiard tables.

(Ord. C-6533 § 1 (part), 1988)

21.15.2130 Porch.

"Porch" means a covered pedestrian entrance to a door of the building. Porch is synonymous with "veranda" or "loggia," all of which are located at the first floor level of a structure. Porch is not synonymous with "carport' or "porte cochere." A porch may include a roof partially supported by columns and/or a handrail.

(Ord. C-6533 § 1 (part), 1988)

21.15.2140 Port-related.

"Port-related" means:

A. Those primary port uses and facilities involving the loading or unloading of material or products from other means of transportation for loading onto ships for combining with products or materials unloaded from ships.

B. Communications and transportation facilities and services necessary for the movement of ships in and out of the port.

C. Those port-related uses or facilities related to storage of materials or products involved in shipping; or uses or facilities for transporting materials or products involved in shipping; or uses or facilities for selling, repairing, or servicing of ships or materials or products being shipped.

D. Those port-dependent uses and facilities for manufacturing of products, whereby materials for the manufacturing are shipped to the site and a significant reduction in weight, bulk or difficulty in transporting occurs in the manufacturing process.

(Ord. C-6533 § 1 (part), 1988)

21.15.2150 Porte cochere.

"Porte cochere" means a roofed structure open on three (3) sides, through which a vehicle may be driven and which is attached to a principal use building by a continuous roof leading to the principal entrance.

(Ord. C-6533 § 1 (part), 1988)

21.15.2160 Premises.

"Premises" means a lot, parcel, tract or plot of land, together with the buildings and structures located thereon.

(Ord. C-6533 § 1 (part), 1988)

21.15.2165 Primary dwelling.

See "Dwelling, primary."

(ORD-17-0031 § 16, 2017)

21.15.2170 Principal use.

"Principal use" means the main use of land or structures, as distinguished from a secondary or accessory use. For example, a house is a principal use in a residential area, and a home occupation is an accessory use.

(Ord. C-6533 § 1 (part), 1988)

21.15.2180 Private club.

"Private club" means a facility, institution or use belonging to or restricted for use and enjoyment by particular persons and their guests, and which is organized primarily for common social and recreational purposes.

(Ord. C-6533 § 1 (part), 1988)

21.15.2190 Professional service.

"Professional service" means a commercial land use involved in the exchange of information and advice for financial consideration.

(Ord. C-6533 § 1 (part), 1988)

21.15.2195 Public Library

"Public Library" means a nonprofit library maintained for public use and usually supported in whole or in part by local taxation. A library is a building or portion thereof where written, audio, visual, and other media are kept in some convenient order for use, but generally not for sale.

(ORD-18-0030 § 12, 2018)

21.15.2200 Public utility service yard.

"Public utility service yard" means a premises used for the office, warehouse, storage yard, or vehicle and equipment maintenance of a public utility. Public utility service yard may include microwave, radio, cable and/or other communications equipment.

(Ord. C-6533 § 1 (part), 1988)

21.15.2210 Public works project.

"Public works project" means any action undertaken by the City or agency under contract to the City to construct, alter, repair or maintain any City structure, utility or right-of-way. Public works project includes the erection of public signs, the painting or removing of street lines, parking space designations, or the painting or removing paint from curbs.

(Ord. C-6533 § 1 (part), 1988)

21.15.2215 Publicly accessible exterior telephones.

"Publicly accessible exterior telephones (PAT)" shall mean an exterior telephone located on public property or on private property if the private property is open or accessible to the public, into which money may be deposited, or through which a credit card or telephone credit card number may be entered, for purposes of obtaining a telecommunications link to communicate with another who receives the communication by telephone or pager. Publicly accessible exterior telephones are prohibited unless an exterior telephone permit (PAT permit) has been approved by the Director of Financial Management pursuant to Chapter 5.71 of Title 5 of the Long Beach Municipal Code.

(Ord. C-7776 § 9, 2001)

21.15.2220 Railroad yard.

"Railroad yard" means a facility used for the switching of railroad cars for the primary purpose of making up trains for transport to distant locations. Railroad yard does not include facilities for the loading and unloading of shipments to or from an individual business.

(Ord. C-6533 § 1 (part), 1988)

21.15.2225 Realtor.

"Realtor" means a real estate agent, broker or an associate who holds active membership in a local real estate board that is affiliated with the National Association of Realtors or California Association of Realtors.

(ORD-13-0018 § 17, 2013)

21.15.2230 Rear lot line.

"Rear lot line" means a line that is opposite and most distant from the front lot line. In the case of an irregular, triangular or gore shaped lot, the rear lot line is a straight line not less than ten feet (10′) long, within the lot, mostly nearly parallel to and at the maximum distance from the front lot line (Figure 15-2).

(Ord. C-6533 § 1 (part), 1988)

21.15.2240 Rear yard, required.

"Required rear yard" means the yard contained in the space extending across the full width of the lot between the principal building and the rear lot line, and measured perpendicular to the building at its closest point to the rear lot line (Figure 15-3).

(Ord. C-6533 § 1 (part), 1988)

21.15.2250 Rebuild.

"Rebuild" means:

1. An addition or additions to a building whereby the (non-garage) area of the building is expanded by more than fifty percent (50%) over the building's existing size, such that the expanded structure contains 150 percent (150%) or more of the square footage of the structure prior to expansion. In calculating the fifty percent (50%) expansion, all construction after January 1, 1990, shall be included; or

2. To modify more than fifty percent (50%) of the exterior walls, as measured by the linear length of the walls. "Modify" means removal of both interior and exterior cladding of the wall sections. "Modify" does not include repairs associated with Section 21.27.090 - Restoration, or projects consisting solely of exterior façade remodels with no interior reconfiguration.

"Rebuild" is used in conjunction with "demolish" (Section 21.15.750) for purposes of implementing Chapter 21.27 (Nonconformities) of this Title. On any project meeting the definition of "rebuild," any existing legal nonconformities on the structure may only continue to be maintained if it is not removed or modified as part of the project, intentionally or otherwise.

(ORD-16-0028 § 8, 2016; Ord. C-6822 § 3, 1990: Ord. C-6533 § 1 (part), 1988)

21.15.2260 Recreation, commercial.

See definition for "Commercial recreation".

(Ord. C-7826 § 2, 2002: Ord. C-6533 § 1 (part), 1988)

21.15.2265 Recreational park.

"Recreational park" means a plot of land used for formal and informal recreational activities. Recreational park includes, but is not limited to, playgrounds, playfields, and athletic courts (i.e., basketball, baseball, roller hockey, volleyball, and dog run).

(Ord. C-7378 § 25, 1995)

21.15.2270 Recreational vehicle.

"Recreational vehicle" means a vehicle used for the conveyance and/or shelter of persons or goods for purposes of leisure time activities. This includes motor homes, travel trailers, vans, truck campers, camping trailers, boats and off the road vehicles.

Recreational vehicles shall not include the following vehicles designed and intended for commercial use and which have been converted to recreational use: airplanes, buses, moving vans, semitrailer vans, recreational vehicles used for economic gain, and "chattel".

(Ord. C-6533 § 1 (part), 1988)

21.15.2273 Religious assembly.

"Religious assembly" is a type of community assembly use where a building or space is used primarily for persons to conduct worship or other religious ceremonies including, but not limited to, church, cathedral, mosque, shrine, synagogue or temple, and other religious worship places, facilities for religious instruction, incidental office, storage, and kitchen facilities. This definition does not include childcare facilities, schools (kindergarten through 12th grade), gymnasiums or other sports facilities.

(ORD-18-0030 § 13, 2018)

21.15.2275 Remodel.

"Remodel" means to refurbish the interior of a building, including consolidating or separating rooms, adding cabinetwork, changing flooring, wall covering, electrical equipment, mechanical equipment and/or appliances. (Also see: Section 21.15.065 and Section 21.15.2250.)

(Ord. C-6822 § 22, 1990)

21.15.2280 Residential.

"Residential" means a land use category with the principal purpose of providing shelter for human habitation on a long-term basis.

(Ord. C-6533 § 1 (part), 1988)

21.15.2290 Residential care facility.

"Residential care facility" means any family home, group care facility or similar facility as determined by the Director of the State Department of Social Services. A residential care facility provides twenty-four (24) hour non-medical services, supervision or assistance essential for sustaining the activities of daily living or for the protection of the individual. Residential care facility includes board and care facilities, halfway houses, housing for wards of the juvenile court and the like.

(ORD-20-0026 § 2, 2020; Ord. C-6533 § 1 (part), 1988)

21.15.2300 Resource recovery.

"Resource recovery" means the salvage of discarded materials or the conversion of the materials into a reusable, saleable or valuable form. Salvaged or converted materials shall not be considered waste.

(Ord. C-6533 § 1 (part), 1988)

21.15.2310 Restaurant.

"Restaurant" means a commercial use engaged in the preparation and sale of food for immediate consumption. A restaurant includes a kitchen containing not less than a double sink, a range, an oven, and an exhaust canopy. Catering is an accessory use to a restaurant. A Restaurant does not include a Microenterprise Home Kitchen Operation (MEHKO).

(ORD-26-0009 § 1, 2026; ORD-18-0025 § 4, 2018; Ord. C-6684 § 14, 1990: Ord. C-6533 § 1 (part), 1988)

21.15.2320 Restaurant, dinner.

"Dinner restaurant" means a restaurant which provides primarily table service to customers with limited takeout service. A Dinner restaurant does not include a Microenterprise Home Kitchen Operation (MEHKO).

(ORD-26-0009 § 2, 2026; Ord. C-6533 § 1 (part), 1988)

21.15.2330 Restaurant, fast-food.

"Fast-food restaurant" means a restaurant which supplies food and beverages primarily in disposable containers and which is characterized by high automobile accessibility, self-service and short stays by customers. A Fast-food restaurant does not include a Microenterprise Home Kitchen Operation (MEHKO).

(ORD-26-0009 § 3, 2026; Ord. C-6533 § 1 (part), 1988)

21.15.2332 Restaurant, ready-to-eat food.

"Ready-to-eat restaurant" means a use, whether it meets the definition of "restaurant" or not, that sells food in a form that is ready to eat at the time of sale, and is primarily designed for takeout, with on-site service area limited to one hundred fifty (150) square feet of dining/in front of counter area. Full service kitchens are not allowed in "ready-to-eat restaurants." Such uses as bakeries, delicatessens, donut shops, ice cream shops, and yogurt shops are common ready-to-eat restaurants. A Ready-to-eat restaurant does not include a Microenterprise Home Kitchen Operation (MEHKO).

(ORD-26-0009 § 4, 2026; Ord. C-7619 § 2, 1999: Ord. C-7326 § 4, 1995: Ord. C-6684 § 4, 1990)

21.15.2340 Retail sales.

"Retail sales" means a commercial land use which provides for the exchange of goods directly to the ultimate consumer in exchange for financial or other considerations.

(Ord. C-6533 § 1 (part), 1988)

21.15.2350 Reversed corner lot.

See "Lot, reversed corner".

(Ord. C-6533 § 1 (part), 1988)

21.15.2360 Room.

"Room" means an area of a building fully enclosed by walls, windows, and/or doors, and a roof and floor. If a room is divided by walls, counters and/or cabinetry fifty percent (50%) or more across the width of the room, the divided areas shall be considered as separate rooms.

(Ord. C-6533 § 1 (part), 1988)

21.15.2370 Room, primary.

"Primary room" means a living room, dining room or family room. In open floor plans which combine living room/dining room space, the living room/dining room shall be considered one (1) room.

(Ord. C-6533 § 1 (part), 1988)

21.15.2380 Room, secondary.

"Secondary room" means all rooms other than primary rooms.

(Ord. C-6533 § 1 (part), 1988)

21.15.2382 Safe parking site.

"Safe parking site" means a parking program, operated on property located outside of the public right-of-way and managed by an institutional organization or nonprofit provider that provides individuals and families with vehicles a safe place to park and sleep overnight while working towards a transition to permanent housing.

(ORD-20-0026 § 16, 2020)

21.15.2385 Sandwiched lot.

"Sandwiched lot" means a lot that is sixty feet (60′) or less in width and contains a one- or two-story, single- or two-family dwelling that is adjoined on both sides by three (3) or more story buildings containing four (4) or more dwelling units each.

(Ord. C-6895 § 30, 1991)

21.15.2390 School.

See "educational institution".

(Ord. C-6533 § 1 (part), 1988)

21.15.2395 School, publicly run post-secondary.

A public post-secondary educational institution such as a university, community college, or trade school accredited by the State Board of Education that is publicly funded and operated by a public agency to give general academic instruction.

(ORD-20-0018 § 20, 2020)

21.15.2400 Secondary housing unit.

See "Accessory dwelling unit."

(ORD-17-0031 § 6, 2017; Ord. C-6533 § 1 (part), 1988)

21.15.2401 Reserved.

Editor's note—ORD-13-0026 § 3, adopted Dec. 3, 2013, repealed § 21.15.2401, entitled "Secondhand dealer", which derived from ORD-13-0018 § 18, 2013.

21.15.2410 Single-family dwelling.

A single-family dwelling is a residential unit designed and intended for occupancy by one (1) family. A single-family dwelling contains one (1) kitchen for central preparation of meals. This definition includes manufactured housing (when placed on a foundation for permanent residency) and group homes. A single-family dwelling may be attached or detached, as follows:

A. Detached. "Detached single-family dwelling" means one (1) dwelling unit located on a single lot with yard areas that separate that dwelling from other dwellings.

B. Attached. "Attached single-family dwelling" means one (1) dwelling unit on a single lot with one (1) side wall in common with a dwelling on an adjoining lot.

(ORD-17-0031 § 7, 2017; Ord. C-6533 § 1 (part), 1988)

21.15.2420 Secondhand store.

"Secondhand store" means a retail establishment that buys, sells, and/or trades used goods, including through consignment, which may include used clothing, furniture, household goods, jewelry, household appliances, musical instruments, business machines and office equipment, hand tools, and similar items. This definition does not include book stores, antique stores, sale of used farm or construction equipment, junk dealers, scrap/dismantling yards, sale of used cars or other vehicles, pawn shops, or establishments selling used jewelry, old coins and stamps.

(ORD-18-0025 § 5, 2018; Ord. C-6533 § 1 (part), 1988)

21.15.2430 Senior citizen housing.

"Senior citizen housing" means any housing constructed and maintained exclusively for residents over fifty-five (55) years of age for active senior housing or over sixty-two (62) years of age for traditional senior housing, other than residential care facilities for the elderly. (There are two (2) types of senior citizen housing: active senior housing, and traditional senior housing.)

(Ord. C-6822 § 4, 1990: Ord. C-6533 § 1 (part), 1988)

21.15.2435 Senior citizen housing, active.

The following conditions shall apply to housing for active senior citizens:

A. Density shall be limited to that of the R-4-N Zoning District at the applicable lot width.

B. The parking shall be provided as designated in Table 41-1A.

C. The use shall not abut or adjoin an automobile service or repair use.

D. The use shall comply with all applicable development standards of the R-4-N Zone except for height and setbacks which shall comply with the standards of the district in which the use is located.

(Ord. C-7663 § 34, 1999)

21.15.2440 Senior citizen housing, congregate care.

"Congregate care senior citizen housing" means senior citizen housing which provides meal service at a central dining facility but does not provide twenty-four (24) hour services or supervision.

(Ord. C-6533 § 1 (part), 1988)

21.15.2450 Service station.

See "Automobile service station".

(Ord. C-6533 § 1 (part), 1988)

21.15.2460 Service yard.

"Service yard" means any premises used primarily for outdoor storage of outdoor vehicles and heavy equipment. Service yard permits maintenance of public utilities and public services such as microwave, radio, cable and/or other communication facilities; however, it does not permit major vehicle repair. "Service yard" does not include outdoor storage of materials for on-site retail or wholesale sales.

(Ord. C-6533 § 1 (part), 1988)

21.15.2470 Setback line.

"Setback line" means a line across the front, sides or rear of any private or public property (Figure 15-3). The setback prohibits the subsequent erection of any building, fence or other structure in the area between such line and the lot line, except as otherwise provided by this Title.

(Ord. C-6533 § 1 (part), 1988)

21.15.2475 Reserved.

Editor's note—ORD-20-0026 § 23, adopted July 14, 2020, repealed § 21.15.2475 entitled "Shelter," which derived from Ord. C-7064 § 7, 1992.

21.15.2480 Shopping center.

"Shopping center" means a commercial land use consisting primarily of retail sales uses and consisting of three (3) or more lease areas on a single recorded lot.

(Ord. C-6533 § 1 (part), 1988)

21.15.2482 Shopping center, neighborhood.

"Neighborhood shopping center" means a building containing three (3) or more tenant spaces of retail, personal service or restaurant use sharing off-street parking in the open between the building and the street. Neighborhood shopping centers do not exceed sixty thousand (60,000) square feet of gross floor area. Multi-tenant retail, personal service or restaurant use buildings or building complexes without parking, with enclosed parking, or with parking screened from the street by the building, shall not be a neighborhood shopping center.

(Ord. C-6684 § 15, 1990: Ord. C-6533 § 1 (part), 1988)

21.15.2484 Shopping center, retail cluster.

"Retail cluster shopping center" means a shopping center containing less than sixty thousand (60,000) square feet of gross floor area, but without common open parking between the building and the street.

(Ord. C-6684 § 16, 1990: Ord. C-6533 § 1 (part), 1988)

21.15.2486 Shopping center, regional.

"Regional shopping center" means a shopping center containing not less than one hundred thousand and one (100,001) square feet of floor area. A regional shopping center usually, but need not always, contains one (1) or more department stores.

(Ord. C-6533 § 1 (part), 1988)

21.15.2487 Short-term rental.

"Short-term rental" means a residential dwelling unit, or portion thereof, that is offered or provided to a paying guest(s) by a short-term rental operator for thirty (30) or fewer consecutive nights. The term "short-term rental" shall not include hotels, motels, inns, or bed and breakfast inns.

(ORD-22-0012 § 1, 2022)

21.15.2488 Side-by-side residential units.

Two-on-a-lot projects where the units are arranged side-by-side and the majority of both units are located in the front fifty percent (50%) of the lot.

(Ord. C-7550 § 16, 1998)

21.15.2490 Side lot line.

"Side lot line" means any lot line not a front or rear lot line (Figure 15-2).

(Ord. C-6533 § 1 (part), 1988)

21.15.2500 Side yard, required.

"Required side yard" means the space extending from the front yard to the rear yard between the principal building and the side lot line, measured perpendicular from the side lot line to the closest point of the principal building (Figure 15-3).

(Ord. C-6533 § 1 (part), 1988)

21.15.2510 Sign.

"Sign" means any device or structure used for visual communication or attraction, including any announcement, declaration, demonstration, display, illustration, insignia, model, statue, or symbol used to identify a place, or to advertise or promote the interest of any person; together with all appurtenant components, backgrounds, and supporting structures, except the building upon which a sign is placed. Official traffic-control devices are specifically exempted from this definition. The official flags of nations, states, counties, cities and recognized nonprofit organizations shall not be considered signs, but flags, banners or similar devices containing a commercial message shall be signs.

(ORD-13-0014 § 1, 2013; Ord. C-6533 § 1 (part), 1988)

21.15.2520 Sign, abandoned.

"Abandoned sign" means the sign face, frame and supporting pole or structure, and all appurtenances, of any sign for a business, institution, or other land use which has abandoned the premises for ninety (90) days or more, or any land use for which the business license has expired and remained expired for one (1) year. Abandoned sign also includes any promotional activity sign for which the permit has expired. Signs associated with a demolished or abandoned building shall also be considered abandoned signs. See also "Abandoned" (Section 21.15.030).

(ORD-13-0014 § 2, 2013; Ord. C-6533 § 1 (part), 1988)

21.15.2530 Sign area.

"Sign area" means the entire face of a sign including the advertising surface and any framing, trim or molding. For signs with more than two (2) surfaces, the area is the maximum area of all display faces which are visible from any ground. If the supporting device is in itself a part of the sign, it shall be included in the calculation of the area of the sign.

(Ord. C-6533 § 1 (part), 1988)

21.15.2540 Reserved.

Editor's note—ORD-13-0014 § 30, adopted Sept. 3, 2013, repealed § 21.15.2540, entitled "Sign, area identification", which derived from Ord. C-6533 § 1 (part), 1988.

21.15.2550 Sign, awning.

"Awning sign" means a sign that is applied, painted or affixed to an awning.

(ORD-13-0014 § 3, 2013; Ord. C-6533 § 1 (part), 1988)

21.15.2560 Reserved.

Editor's note—ORD-13-0014 § 30, adopted Sept. 3, 2013, repealed § 21.15.2560, entitled "Sign, backdrop wall", which derived from Ord. C-6533 § 1 (part), 1988.

21.15.2570 Sign, banner.

See "Sign, promotional activity - commercial" (Section 21.15.2720).

(ORD-13-0014 § 4, 2013; Ord. C-6533 § 1 (part), 1988)

21.15.2570.5 Sign, building identification.

"Building identification sign" means a sign which serves to identify only the name, address, and use or principal tenant of the premises upon which it is located and provides no other advertisements or product identification.

(ORD-13-0014 § 21, 2013)

21.15.2571 Sign, changeable copy.

A sign whose copy is periodically changed to advertise events, sales, and the like, with detachable but motionless lettering that must be manually installed, usually on a series of parallel tracks. A changeable copy sign shall not include a "trivision" sign, electronic sign, electronic message center sign, or time, date, and temperature sign.

(ORD-13-0014 § 5, 2013; Ord. C-7550 § 17, 1998)

21.15.2573 Sign, residential neighborhood or commercial district identification.

A "residential neighborhood identification sign" or "commercial district identification sign" identifies a residential neighborhood and/or commercial or industrial district(s), and may announce its geographical boundaries (i.e., now entering or leaving neighborhood or district name) within the City. This sign shall always identify that the respective neighborhood or district is part of the City.

(ORD-13-0014 § 6, 2013; Ord. C-7500 § 20, 1997)

21.15.2575 Sign, cabinet.

"Cabinet sign" means sign with one or several faces, which contains all the text and/or logo symbols of each face upon a facing made of translucent and/or opaque material contained within a single enclosed cabinet, box or can. A cabinet sign may or may not be internally illuminated.

(ORD-13-0014 § 22, 2013)

21.15.2577 Sign, electronic message center.

"Electronic message center sign" is a sign whose alphabetic, pictographic, or symbolic informational content can be changed or altered on a fixed display surface composed of electrically-illuminated or mechanically-driven changeable segments. This includes signs whose informational content can be changed or altered by means of computer- or circuit-driven electronic impulses. An electronic message center sign displays only on-site sign copy, information, and advertising; otherwise it shall be considered a billboard. Electronic message center sign does not include a sign that displays only time, date, and/or temperature if it is six (6) square feet or smaller.

(ORD-13-0014 § 7, 2013; Ord. C-7500 § 21, 1997)

21.15.2580 Sign, freestanding.

"Freestanding sign" means a sign which is supported by a structure connected permanently to the ground, or displayed directly upon a base connected permanently to the ground, and which is not structurally connected to a building or other structure. This includes but is not limited to those signs known as "pole signs." See also "Monument sign" (Section 21.15.2620).

(ORD-13-0014 § 8, 2013; Ord. C-6533 § 1 (part), 1988)

21.15.2590 Sign, freeway-oriented.

"Freeway-oriented sign" means a freestanding sign for a business which adjoins a freeway right-of-way and which is located within one thousand five hundred feet (1,500′) of the intersection of the freeway off-ramp with the surface street providing access to the premises on which the sign is located.

(Ord. C-6533 § 1 (part), 1988)

21.15.2595 Sign, interior.

"Interior sign" means a sign that is located between one (1) and six (6) feet to the interior of any window through which the sign is visible.

(ORD-13-0014 § 23, 2013)

21.15.2600 Sign, marquee/canopy.

"Marquee/canopy sign" means a sign that is attached to the vertical face or the soffit of a marquee or canopy. See "Awning sign" (Section 21.15.2550).

(ORD-13-0014 § 9, 2013; Ord. C-6533 § 1 (part), 1988)

21.15.2610 Sign, menu board.

"Menu board sign" means a sign that is displayed for the use of drive-thru, fast-food restaurant patrons to identify the food and prices available on the site.

(Ord. C-6533 § 1 (part), 1988)

21.15.2620 Sign, monument.

"Monument sign" means a sign that is displayed directly on the ground, on a base connected permanently to the ground, and which is not structurally connected to a building or structure. See also "Freestanding sign" (Section 21.15.2580).

(ORD-13-0014 § 10, 2013; Ord. C-6533 § 1 (part), 1988)

21.15.2630 Sign, neighborhood marker.

"Neighborhood marker sign" means a sign placed upon a street light standard or traffic signal pole to identify a residential neighborhood or commercial district. These signs are administered by the Department of Public Works, and not regulated in Title 21 (see Section 21.44.240).

(ORD-13-0014 § 11, 2013; Ord. C-6533 § 1 (part), 1988)

21.15.2640 Reserved.

Editor's note—ORD-13-0014 § 30, adopted Sept. 3, 2013, repealed § 21.15.2640, entitled "Sign, noncommercial", which derived from Ord. C-6533 § 1 (part), 1988.

21.15.2650 Sign, off-premises.

See "Billboard."

(Ord. C-6533 § 1 (part), 1988)

21.15.2660 Sign, on-premises.

"On-premises sign" means a sign that identifies or communicates a message related to the activity conducted, the service offered, or the commodity sold on the premises upon which the sign is located.

(Ord. C-6533 § 1 (part), 1988)

21.15.2665 Sign, on-site directional.

"On-site directional sign" means a class of sign that directs persons to a destination within the subject site, typically a parking lot. An on-site directional sign contains simple information such as "Enter," "Exit," "This Way," or "Do Not Enter," as well as a business name and/or logo. An on-site directional sign is intended for traffic internal to the site, and is not directed at traffic on an adjacent road or right-of-way.

(ORD-13-0014 § 24, 2013)

21.15.2667 Single Room Occupancy (SRO).

"Single Room Occupancy (SRO) facility" means any building intended to be designed or be used, or which are used, rented, or hired out, to be occupied, or which are occupied, for sleeping purposes by a maximum of two persons per unit, which is also the primary residence of those residents. The individual units shall be prohibited from containing cooking facilities and/or sanitary facilities but shall contain a sink and a bed. The SRO shall have on-site management. For purposes of this definition, a Single Room Occupancy facility does not include residential care homes, senior housing projects, rooming and board houses, hotels and motels, bed and breakfast lodging, vacation rentals, extended care facilities or hospitals. For classification purposes, a Single Room Occupancy facility shall be considered a Special Group Residence.

(ORD-15-0015 § 2, 2015)

21.15.2670 Reserved.

Editor's note—ORD-13-0014 § 30, adopted Sept. 3, 2013, repealed § 21.15.2670, entitled "Sign, painted", which derived from Ord. C-6533 § 1 (part), 1988.

21.15.2680 Reserved.

Editor's note—ORD-13-0014 § 30, adopted Sept. 3, 2013, repealed § 21.15.2680, entitled "Sign, pennant", which derived from Ord. C-6533 § 1 (part), 1988.

21.15.2690 Reserved.

Editor's note—ORD-13-0014 § 30, adopted Sept. 3, 2013, repealed § 21.15.2690, entitled "Sign, political", which derived from Ord. C-6533 § 1 (part), 1988.

21.15.2700 Sign, portable.

"Portable sign" means a sign standing upon the ground but not permanently located upon a foundation. This includes, but is not limited to, those signs known as "sandwich-board signs," "A-frame signs," and "sidewalk signs."

(ORD-13-0014 § 12, 2013; Ord. C-6533 § 1 (part), 1988)

21.15.2710 Sign, projecting.

"Projecting sign" means a sign which is attached to, and projects outward at an angle from, a wall or other essentially vertical plane of a building or structure. A projecting sign also may be known as a "blade sign."

(ORD-13-0014 § 13, 2013; Ord. C-6533 § 1 (part), 1988)

21.15.2720 Sign, promotional activity - commercial.

"Promotional activity sign-commercial" means any sign utilized to promote or advertise a commercial activity or event that is permitted on a temporary basis under the provisions of Section 21.44.410, for the purpose of announcing an event, product, service, or sale of a temporary nature. Promotional activity signs are made of non-permanent materials such as cloth, vinyl, or mesh, and are not permanently attached or affixed to a building. Promotional activity signs commonly are known as "banners."

(ORD-13-0014 § 14, 2013; Ord. C-6533 § 1 (part), 1988)

21.15.2721 Sign, promotional activity - noncommercial.

"Promotional activity sign - noncommercial" means any sign made of cloth or paper taking the form of a banner, placard, sign board, or similar device or structure and which is utilized to promote, advertise, or advocate for or against a particular person, event or activity in a noncommercial context. Noncommercial promotional activity signs shall be removed from a premise no later than five (5) days following the conclusion of the activity or event promoted by such sign.

(ORD-13-0014 § 25, 2013)

21.15.2723 Sign, push-through.

"Push-through sign" or "push-through cabinet sign" refers to a cabinet sign with sign copy rendered in relief either in front of or behind the sign face, similar to channel letters. A push-through sign typically is internally illuminated with an opaque face, creating a halo effect, although other designs such as illuminated letters or exposed neon in open-faced letters are acceptable as well.

(ORD-13-0014 § 26, 2013)

21.15.2725 Reserved.

Editor's note—ORD-13-0014 § 30, adopted Sept. 3, 2013, repealed § 21.15.2725, entitled "Sign, pylon", which derived from Ord. C-7663 § 35, 1999.

21.15.2730 Sign, roof.

"Roof sign" means a sign that is mounted or positioned on the roof of a building and which projects above the parapet wall of a building with a flat roof, or above the eave line of a building with a sloped roof (gambrel, gable or hip roof), or above the deck line of a building with a mansard roof.

(ORD-13-0014 § 15, 2013; Ord. C-6533 § 1 (part), 1988)

21.15.2740 Sign, temporary.

"Temporary sign" refers to those signs that are permitted on a temporary basis in Division IV of Chapter 21.44. See also "Promotional activity sign - commercial" (Section 21.15.2720).

(ORD-13-0014 § 16, 2013; Ord. C-6533 § 1 (part), 1988)

21.15.2743 Sign, through-the-face.

See "Sign, push-through" (Section 21.15.2723).

(ORD-13-0014 § 27, 2013)

21.15.2745 Sign, traffic directional.

"Traffic directional sign" means any sign displayed to ensure the safe and orderly flow of automobile traffic on private property. These consist of stop signs, one-way signs, do not enter signs, speed limit signs, left/right turn-only signs, no left/right turn signs, and other traffic signs of like purpose. Traffic directional signs do not contain business information or directions to a destination. Traffic directional signs shall conform to official traffic control device standards as directed by the City Traffic Engineer.

(ORD-13-0014 § 28, 2013)

21.15.2750 Sign, wall.

"Wall sign" means a sign fastened to the wall of a building or structure in such a manner that the wall becomes the supporting structure for or forms the background surface of the sign. Such a sign may not project more than fourteen inches (14") beyond the vertical wall surface or it shall be considered a projecting sign.

(ORD-13-0014 § 17, 2013; Ord. C-6533 § 1 (part), 1988)

21.15.2755 Sign, wall painted.

"Wall-painted sign" means a sign that is painted on a building wall in lieu of a permanent, fixed wall sign structure.

(ORD-13-0014 § 29, 2013)

21.15.2760 Sign, window.

"Window sign" means a sign which is painted on, or attached to, the interior side of window or glass doors, or which is inside a window and mounted within one foot (1′) of a window.

(Ord. C-6533 § 1 (part), 1988)

21.15.2770 Signable area.

"Signable area", as applied to individual wall signs, shall be the area of one (1) rectangle on a wall, within the required height limits, which is unbroken by major architectural features such as doors, windows, columns or architectural protrusions. Only one (1) signable area is permitted per building elevation per business. Only that portion of the building occupied by the business shall be used in calculating the signable area. A business fronting onto more than one (1) public right-of-way may not combine permitted signable area for one (1) wall with that of another wall for the purpose of placing the combined area, or any part of the combined area, on one (1) wall.

(Ord. C-6533 § 1 (part), 1988)

21.15.2780 Site plan.

"Site plan" means a plan drawn to scale showing uses and structures proposed for a parcel of land as required by the applicable regulations. It includes lot lines, streets, building sites, reserved open space and other specific development proposals, similar to a plot plan.

(Ord. C-6533 § 1 (part), 1988)

21.15.2790 Soaking pool.

"Soaking pool" means an artificial body of water having a depth in excess of eighteen inches (18″), a surface area of less than one hundred (100) square feet, and designed, constructed and used for immersion purposes by human beings. Soaking pool includes a therapy pool.

(Ord. C-6533 § 1 (part), 1988)

21.15.2793 Social service facility.

"Social service facility" is defined as a facility maintained and used as a place of business conducted by persons or entities engaged in offering services such as on-site group counseling, treatment or recovery programs, shower and/or storage facilities, and food distribution including meal services, but wherein no overnight care for patients or clients is given. For the purpose of this definition, "group" means eight (8) or more persons. Professional care providers that do not engage in on-site group counseling, treatment or recovery programs (e.g., MFC, MFCC, MSW, Psychiatric Nurse, Psychologist, or Psychiatrist) are considered professional offices.

(ORD-20-0026 § 17, 2020)

21.15.2795 Social service office.

"Social service office." See "Social service facility."

(ORD-20-0026 § 3, 2020; Ord. C-7729 § 11, 2001)

21.15.2800 Solid fence.

"Solid fence" means a wood or masonry fence with no openings, a chain link fence with slats, or other opaque materials deemed to constitute "solid" by the Director of Planning and Building.

(Ord. C-7360 § 1, 1995: Ord. C-6533 § 1 (part), 1988)

21.15.2810 Special group residence.

"Special group residence" includes, but is not limited to, fraternity and sorority houses, college dormitories, residential care facilities, convalescent hospitals, senior citizen housing, housing for persons with disabilities, halfway houses, communal housing, and military barracks. Special group residence does not include group homes or parsonages as defined by this Code.

(ORD-20-0026 § 4, 2020; ORD-18-0030 § 4, 2018; Ord. C-6533 § 1 (part), 1988)

21.15.2820 Special setback line.

"Special setback line" means a setback line, on a lot or several lots, established by separate ordinance adopted by the City Council. The special setback line, which supersedes the normally required setback line, may be greater or less than the setback prescribed in the development standards for the particular land use district in which the lot or lots may be located.

(Ord. C-6533 § 1 (part), 1988)

21.15.2830 Stable, private.

"Private stable" means a building or a portion of a building used to shelter and feed horses or ponies which are used exclusively by the occupants of the property on which the stable is situated.

(Ord. C-6533 § 1 (part), 1988)

21.15.2840 Stable, commercial.

"Commercial stable" means a stable other than a private stable.

(Ord. C-6533 § 1 (part), 1988)

21.15.2850 Stall, box.

"Box stall" means an individual shelter for a horse which is completely enclosed (except for doors, windows and other ventilating apertures) and which has a minimum area of ninety-six (96) square feet (with no dimension less than eight feet (8')). A box stall must be free and clear of any obstruction and may be located in a private or public stable.

(Ord. C-6533 § 1 (part), 1988)

21.15.2860 Stall, tie.

"Tie stall" means an individual shelter for a horse partially enclosed on three (3) sides with a wall, fence, railing or similar structure. A tie stall has a minimum area of sixty (60) square feet (with no dimension less than five feet (5')), must be free and clear of any obstruction, and must be located in a public or private stable.

(Ord. C-6533 § 1 (part), 1988)

21.15.2870 Standards or development standards.

"Standards" or "development standards" means the physical design and development portion of the Zoning Regulations controlling such items as building coverage, yard areas, height of structures or floor area ratios. These are distinguished from use regulations, which restrict the types of land uses allowed on a property.

(Ord. C-6533 § 1 (part), 1988)

21.15.2880 Standard State Zoning Enabling Act (SZEA).

"Standard State Zoning Enabling Act (SZEA)" means a model act originally prepared in 1922 under the auspices of the United States Department of Commerce. It serves as the model for the zoning enabling legislation in many States.

(Ord. C-6533 § 1 (part), 1988)

21.15.2890 Standards variance.

"Standards variance" means granting a property owner relief from development standards of the Zoning Regulations when, because of the particular physical or topographical condition of the property, compliance would result in undue hardship on the owner (as distinguished from a mere inconvenience or desire to make more money). Standards variance shall not be used to intensify the use or increase the density on a lot.

(Ord. C-6533 § 1 (part), 1988)

21.15.2900 Street.

"Street" means a public or private right-of-way with a width of more than twenty feet (20′) providing access to properties and which is designated as a street on the Official Map of the City of Long Beach.

(Ord. C-6533 § 1 (part), 1988)

21.15.2910 Street furniture.

"Street furniture" includes such items as benches, landscaping walls, newsracks, newsstands, trash receptacles, phone booths and the like.

(Ord. C-6533 § 1 (part), 1988)

21.15.2920 Storage.

"Storage" means placing of a material or vehicle at one location for more than seventy-two (72) hours without use.

(Ord. C-6533 § 1 (part), 1988)

21.15.2930 Storage, hazardous waste.

See "Hazardous waste facility."

(Ord. C-6533 § 1 (part), 1988)

21.15.2940 Story.

"Story" means that portion of a building included between the surface of any floor and the floor next above it, or if there is no floor above it, then the space between the floor and the ceiling (Figure 15-7). Basements and attics are not stories.

(Ord. C-6533 § 1 (part), 1988)

21.15.2950 Strong oxidizer.

"Strong oxidizer" means a substance that can supply oxygen to a reaction and cause a violent reaction, or that can sustain a fire when in contact with a flammable or combustible material in the absence of air.

(Ord. C-6533 § 1 (part), 1988)

21.15.2960 Strong sensitizer.

"Strong sensitizer" means a substance which will cause a hypersensitivity on normal living tissue (through an allergic or photodynamic process) which becomes evident on reapplication of the same substance.

(Ord. C-6533 § 1 (part), 1988)

21.15.2970 Structure.

"Structure" means a manmade object without occupiable floor area.

(Ord. C-6533 § 1 (part), 1988)

21.15.2980 Supergraphics.

"Supergraphic" means a sign, containing either on-site or off-site advertising, consisting of sign copy and/or an image that is applied to a building, structure, or wall, or projected onto a building, structure, or wall, or printed on vinyl, mesh, fabric, or any other material, and hung from or wrapped about a building or structure, and which does not comply with the requirements for a permitted sign type under the provisions of Chapter 21.44, or the requirements for a billboard under Chapter 21.54. The term "supergraphic" also shall include signs known as "building wraps."

(ORD-13-0014, § 18, 2013; ORD-12-0006 § 2, 2012; Ord. C-6533 § 1 (part), 1988)

21.15.2985 Supportive housing.

"Supportive housing" is housing with no limit on length of stay that is linked to an onsite or offsite service that assists the supportive housing resident in retaining the housing, improving their health status, or maximizing their ability to live and, when possible, work in the community. Supportive housing residents may include target populations including persons with low incomes, persons with disabilities, adults, emancipated minors, families with children, elderly persons, young adults aging out of the foster care system, individuals exiting from institutional settings, veterans, or homeless people.

(ORD-20-0026 § 5, 2020; ORD-15-0015 § 3, 2015)

21.15.2987 Target population.

"Target population" means persons with low incomes who have one or more disabilities, including mental illness, HIV or AIDS, substance abuse, or other chronic health condition, or individuals eligible for services provided pursuant to the Lanterman Developmental Disabilities Services Act (Division 4.5 (commencing with Section 4500) of the Welfare and Institutions Code) and may include, among other populations, adults, emancipated minors, families with children, elderly persons, young adults aging out of the foster care system, individuals exiting from institutional settings, veterans, and homeless people.

(ORD-15-0015 § 4, 2015)

21.15.2990 Tattoo parlor.

"Tattoo parlor" means a commercial land use where the marking or coloring of the skin is performed by pricking in coloring matter or by producing scars, and which is conducted in exchange for financial or other valuable consideration. It does not include the application of permanent cosmetics or tattooing when applied by a licensed dermatologist on premises licensed as a dermatological office.

(ORD-18-0013 § 1, 2018; Ord. C-6533 § 1 (part), 1988)

21.15.3000 Tavern.

"Tavern" includes bars, pubs, cocktail lounges and similar establishments that operate either under a Type 48 Department of Alcoholic Beverage Control license (On-sale General-Public Premises) and sell beer, wine and distilled spirits for consumption on the premises, or a Type 42 license (On-sale Beer and Wine-Public Premises), but do not necessarily sell food. Tavern also includes bars and pubs that operate under a Type 40 license (On-sale Beer), and which sell sandwiches or snacks but not wine or distilled spirits. This use does not include Nightclubs as defined by these regulations or restaurants that operate under a Type 47 or Type 41 License. A Tavern does not include a Microenterprise Home Kitchen Operation (MEHKO).

(ORD-26-0009 § 5, 2026; ORD-18-0025 § 6, 2018; Ord. C-6533 § 1 (part), 1988)

21.15.3005 Temporary activating uses.

"Temporary activating uses" are intended to provide a community benefit, encourage street activation, and reduce visual blight associated with vacant lots, as defined in Chapter 18.29, on a temporary basis and can include sporadic special events, such as cultural and community events, or temporary retail or services uses, such as bike kitchens. Temporary activating uses are proposed by community-based public or private organizations that improve and enhance the social or economic welfare and quality of life of the residents of Long Beach, and provide a service to City residents, including, but not limited to, faith-based organizations, local non-profit organizations or associations, Business Improvement Districts (BIDs), and organizations that have entered into a contract or agreement with the City to provide specific services or outreach, as determined by the Zoning Administrator.

(ORD-20-0018 § 21, 2020)

21.15.3010 Therapy pool.

See "Soaking pool."

(Ord. C-6533 § 1 (part), 1988)

21.15.3015 Thrift shop.

See "Secondhand store."

(ORD-18-0025 § 7, 2018; Ord. C-7047 § 31, 1992)

21.15.3020 Through lot or double frontage lot.

See "Lot, through."

(Ord. C-6533 § 1 (part), 1988)

21.15.3030 Tire retreading establishment.

"Tire retreading establishment" means a business involved in the retreading, recapping or rebuilding of tires using previously processed rubber or synthetic products.

(Ord. C-6533 § 1 (part), 1988)

21.15.3040 Tire store.

"Tire store" means a place of business where the sale, installation, or storage of new or used or retread tires and tubes is conducted with or without other products or services. Tire store does not include tire retreading establishment.

(Ord. C-6533 § 1 (part), 1988)

21.15.3050 Title.

"Title," when referred to in this Title, means Title 21 of the Long Beach Municipal Code relating to the Zoning Regulations.

(Ord. C-6533 § 1 (part), 1988)

21.15.3060 Townhouse.

"Townhouse" means a dwelling unit with one (1) or two (2) common walls, and which has direct exterior access, private yards and no common floors or ceilings with other units including residential projects with two (2) or more side-by-side units.

(ORD-19-0011 § 1, 2019; Ord. C-6533 § 1 (part), 1988)

21.15.3070 Toxic.

"Toxic" means capable of producing injury, illness, or damage to humans, domestic livestock or wildlife through ingestion, inhalation or absorption through any body surface.

(Ord. C-6533 § 1 (part), 1988)

21.15.3080 Transfer of development rights (TDR).

"Transfer of development rights (TDR)" means the removal of the right to develop or build on land in one area and the transfer of that right to another area or district where such transfer is permitted.

(Ord. C-6533 § 1 (part), 1988)

21.15.3090 Transfer station.

"Transfer station" means any facility where hazardous wastes are transferred from one vehicle to another or where hazardous wastes are stored or consolidated before being transported elsewhere.

(Ord. C-6533 § 1 (part), 1988)

21.15.3095 Transitional housing.

"Transitional housing" means temporary housing linked to supportive services that is offered, usually less than 24 months, to facilitate movement to permanent housing for persons with low incomes who may have one or more disabilities, and may include, among other populations, adults, emancipated

minors, families with children, elderly persons, young adults aging out of the foster care system, individuals exiting from institutional settings, veterans, or homeless people. Transitional housing is an acceptable accessory use only when provided within an existing transitional building on a shared-use basis. A shared use exists when the sheltering of families or individuals in need of sanctuary is incidental to the primary institutional use for which the building is designed and intended.

(ORD-20-0026 § 6, 2020; ORD-15-0015 § 5, 2015)

21.15.3100 Travel trailer.

"Travel trailer" means a vehicle designed for human occupancy and used for travel or recreational purposes.

(Ord. C-6533 § 1 (part), 1988)

21.15.3110 Travel trailer park.

"Travel trailer park" means an area where spaces are offered to one (1) or more users of travel trailers. This definition includes trailer camps, recreational vehicles courts or parks and the like.

(Ord. C-6533 § 1 (part), 1988)

21.15.3120 Treatment.

"Treatment" means any method, technique or process designed to change the physical, chemical or biological character or composition of any hazardous waste.

(Ord. C-6533 § 1 (part), 1988)

21.15.3130 Treatment facility.

"Treatment facility" means any facility at which hazardous waste is subjected to treatment or where a resource is recovered from a hazardous waste.

(Ord. C-6533 § 1 (part), 1988)

21.15.3140 Triplex, three-family dwelling.

"Triplex" means a building containing three (3) dwelling units.

(Ord. C-6533 § 1 (part), 1988)

21.15.3150 Truck yard.

"Truck yard" means a facility used exclusively for breaking down and assembling tractor-trailer transport, or for parking of heavy vehicles for short periods of time. Truck yard does not include facilities for the loading and unloading of shipments to or from an individual business.

(Ord. C-6533 § 1 (part), 1988)

21.15.3151 Tutoring center.

"Tutoring center" means a professional service, other than a school, that offers tutoring services for one-on-one and or groups as defined in the California Building Code occupancy grouping.

(ORD-19-0028 § 32, 2019)

21.15.3153 Unattended Donation Box.

"Unattended Donation Box" means any unstaffed drop-off box, container, receptacle, or similar device that is used for soliciting and collecting donations of clothing or other salvageable personal property. This term does not include recycle bins for the collection of recyclable material (such as beverage containers) governed or regulated by the Zoning Code.

(ORD-18-0003(Emerg.) § 3, 2018)

21.15.3155 Urban agriculture use.

"Urban agriculture use" means farming in all its branches including, but not limited to, the cultivation and tillage of the soil, the production, cultivation, growing, and harvesting of any agricultural or horticultural products, the raising of livestock, bees, fur-bearing animals, dairy-producing animals, and poultry, agriculture education, the sale of produce through field retail stands or farm stands, and any practices performed by a farmer or on a farm as an incident to or in conjunction with farming operations. For purposes of this definition, the term "urban agriculture use" does not include timber production and does not include cultivation of marijuana.

(ORD-17-0024 § 7, 2017)

21.15.3160 Usable open space.

"Usable open space" means any space on a lot not enclosed within a building which is designed for specific recreational purposes, including active and passive recreational activities. Usable open space includes yards (except the required front yard setback), courtyards, balconies, decks, porches, roof decks and patios. Usable open space does not include driveways, aisles, parking spaces or side or rear yards less than eight feet (8') in width or front yards unless permitted by the provisions of Section 21.31.242.

(Ord. C-6933 § 4, 1991: Ord. C-6533 § 1 (part), 1988)

21.15.3170 Usable open space, common.

"Common usable open space" means usable open space designed and intended for the common use or enjoyment by residents or guests.

(Ord. C-6533 § 1 (part), 1988)

21.15.3180 Usable open space, private.

"Private usable open space" means usable open space designed and intended for the private use and enjoyment by residents or guests. Private usable open space shall have direct access to the unit for which the space is designed.

(Ord. C-6533 § 1 (part), 1988)

21.15.3190 Use.

A. "Use" means the purpose for which land or a building is occupied, arranged, designed or intended, or for which either land or building is or may be occupied or maintained. Use also means the activity conducted on the land or in the building.

B. A business facility shall be considered a single use if separate rooms have doorways which interconnect the rooms, regardless of whether such rooms contain independent exterior doorways and/or separate addresses.

(Ord. C-6533 § 1 (part), 1988)

21.15.3200 Variance.

See "Standards variance".

(Ord. C-6533 § 1 (part), 1988)

21.15.3205 Vehicle.

"Vehicle" means a device by which any person or property may be propelled, moved, or drawn upon a street or highway, except a device moved by human power or used exclusively upon stationary rails or tracks.

(Ord. C-7776 § 10, 2001)

21.15.3210 Vehicle, dismantled.

"Dismantled vehicle" means a vehicle without hoods, doors, fenders, body panels, headlights, trunk lids, tires, wheels, windows or windshields (when such items are normally part of the vehicle).

(Ord. C-7776 § 2, 2001: Ord. C-6533 § 1 (part), 1988)

21.15.3215 Vehicle, inoperative.

"Inoperative vehicle" includes: (a) any vehicle which is not currently and validly registered for operation or use on the streets and highways in the State as required under the provisions of the California Vehicle Code; or (b) any motor vehicle which currently is incapable of being driven under its own motor power; or (c) any non-motor vehicle which currently is incapable of being moved or drawn.

(Ord. C-7776 § 11, 2001)

21.15.3220 Vehicle, wrecked.

"Wrecked vehicle" means a vehicle with dented areas in excess of one (1) square foot, rusted exterior body parts or broken glass parts.

(Ord. C-6533 § 1 (part), 1988)

21.15.3225 Vending cart.

A "vending cart" is any wagon, cart, or similar wheeled container, which is not a "vehicle" as defined in the Vehicle Code of the State of California, from which food, beverage, or other consumable product is offered for sale to the public.

(Ord. C-7247 § 30, 1994)

21.15.3230 Vested right.

"Vested right" means a right which has been legally established and cannot be revoked by subsequent conditions or changes in law without due process of law. There is no vested right to an existing zoning designation.

(Ord. C-6533 § 1 (part), 1988)

21.15.3240 Veterinary clinic.

"Veterinary clinic" means a medical facility licensed by the State Department of Public Health for the treatment of household pets. The use may include the overnight care of patients.

(Ord. C-6533 § 1 (part), 1988)

21.15.3250 Veterinary use.

"Veterinary use" means a commercial land use consisting of the grooming, treating (medical), selling or boarding of animals. Species of equine are excluded from this definition.

(Ord. C-6533 § 1 (part), 1988)

21.15.3260 Vocational school.

"Vocational school" means a commercial land use consisting of an institution of learning for a special skill or special knowledge. Vocational school includes trade school, business school, professional school and school for self-improvement.

(Ord. C-6533 § 1 (part), 1988)

21.15.3265 Waiver, development standards (density bonus).

"Waiver" or "development standards waiver," for the purposes of density bonus administration, means a modification or reduction of a zoning development standard that otherwise physically precludes the

construction of a development project that is the subject of a density bonus request. A development standards waiver shall not be used to reduce minimum life safety standards, building standards approved by the California Building Standards Commission, or standards of the Long Beach Building Standards Code.

(ORD-26-0017 § 25, 2026)

21.15.3270 Wall return.

"Wall return" means a fence or garden wall extending from a building to another fence or garden wall.

(Ord. C-6533 § 1 (part), 1988)

21.15.3280 Wetbar.

"Wetbar" means a sink located some place other than the kitchen, bathroom or laundry. Wetbar does not include a stove, range, or similar appliance customarily identified with a kitchen. Where a wetbar is located in a room or a portion of a room with a stove, hotplate, range, oven or microwave oven or other kitchen-type facilities, it shall constitute a separate kitchen.

(Ord. C-6533 § 1 (part), 1988)

21.15.3290 Window.

"Window" is an opening in a wall of a building designed to allow light and/or ventilation into a room of a building, and enclosed by casement or sash containing glass or other similar transparent or semitransparent material.

(Ord. C-6533 § 1 (part), 1988)

21.15.3300 Wholesale, industrial.

"Industrial wholesale" means an industrial land use consisting of the exchange of large quantities of goods for future distribution and resale for financial or other considerations.

(Ord. C-6533 § 1 (part), 1988)

21.15.3310 Wing wall.

"Wing wall" means an extension of a wall of a building beyond that enclosing the space within the building. A wing wall may be structural, such as a buttress arch, or may be provided purely for design purposes.

(Ord. C-6533 § 1 (part), 1988)

21.15.3320 Yard, required front.

See "Front yard, required".

21.15.3330 Yard, required rear.

See "Rear yard, required."

(Ord. C-6533 § 1 (part), 1988)

21.15.3340 Yard, required side.

See "Side yard, required."

(Ord. C-6533 § 1 (part), 1988)

21.15.3350 Zero bedroom unit.

"Zero bedroom unit" means a dwelling unit consisting of one (1) kitchen, one (1) bathroom and one (1) combination living and sleeping room. It shall not exceed four hundred and fifty (450) square feet gross floor area or it shall be considered a one (1) bedroom unit. A zero bedroom unit is also known as a single, a bachelor or an efficiency unit.

(Ord. C-6533 § 1 (part), 1988)

21.15.3360 Zero lot line.

"Zero lot line" means a development form in which a building is sited on one (1) or more lot lines with no yard, or zero setback (Figure 15-4). The intent is to allow more flexibility in site design and to increase the amount of usable open space on the lot.

(Ord. C-6533 § 1 (part), 1988)

21.15.3370 Zone or zone district.

"Zone" or "zone district" means a section of the City described in the text of the Zoning Regulations and delineated on the use district maps of the City. The text sets forth the requirements for the use of land as well as improvement and development standards.

(Ord. C-6533 § 1 (part), 1988)

21.15.3380 Zoning Administrator.

"Zoning Administrator" means the person duly appointed by the Director of Planning and Building, with confirmation by the Planning Commission, to make administrative decisions as prescribed in this Title and to handle such other duties as assigned by the Director of Planning and Building in the administration and enforcement provisions of this Title. Such person shall be a member of the Department of Planning and Building and shall have a position of Division Manager or above.

(Ord. C-6533 § 1 (part), 1988)

21.15.3390 Zoning amendment.

"Zoning amendment" means a change in the Zoning Regulations or zoning map. Zoning amendment also includes rezoning.

(Ord. C-6533 § 1 (part), 1988)

21.15.3400 Zoning map.

"Zoning map" means the map portion of the Zoning Regulations delineating the boundaries of land use districts and which, along with the zoning text, comprises the Zoning Ordinance or Zoning Regulations. Zoning map also includes land use district maps.

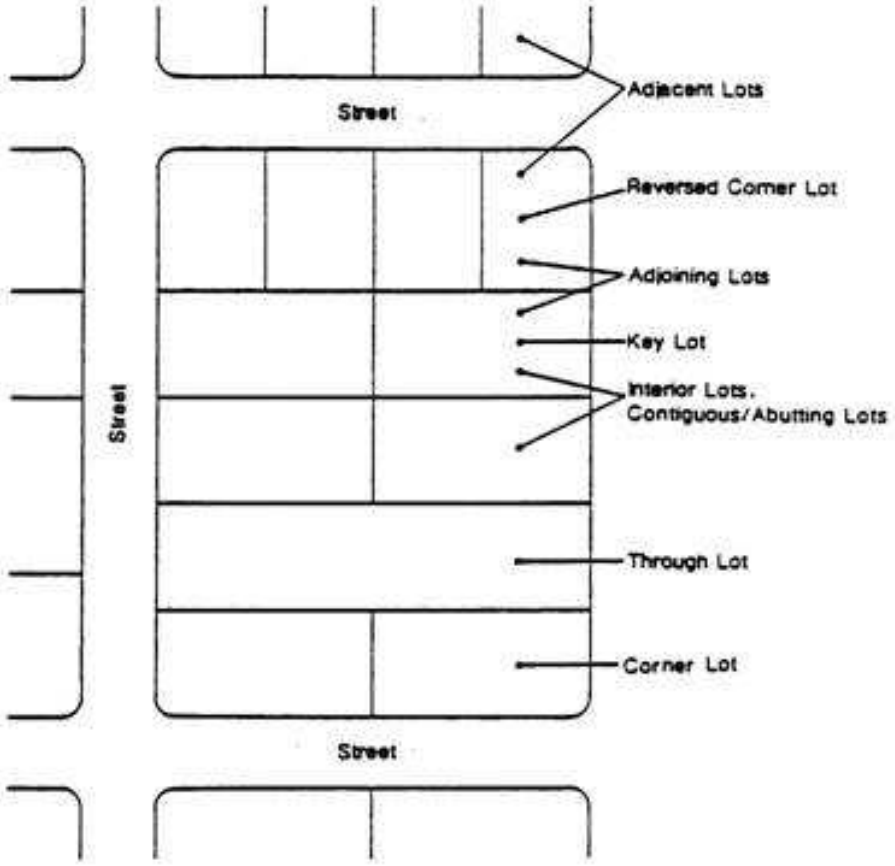
(Ord. C-6533 § 1 (part), 1988)

21.15.3410 Zoning Regulations or Zoning Ordinance.

"Zoning Regulations" or "Zoning Ordinance" means the textual and map portions of the Zoning Regulations of the Long Beach Municipal Code.

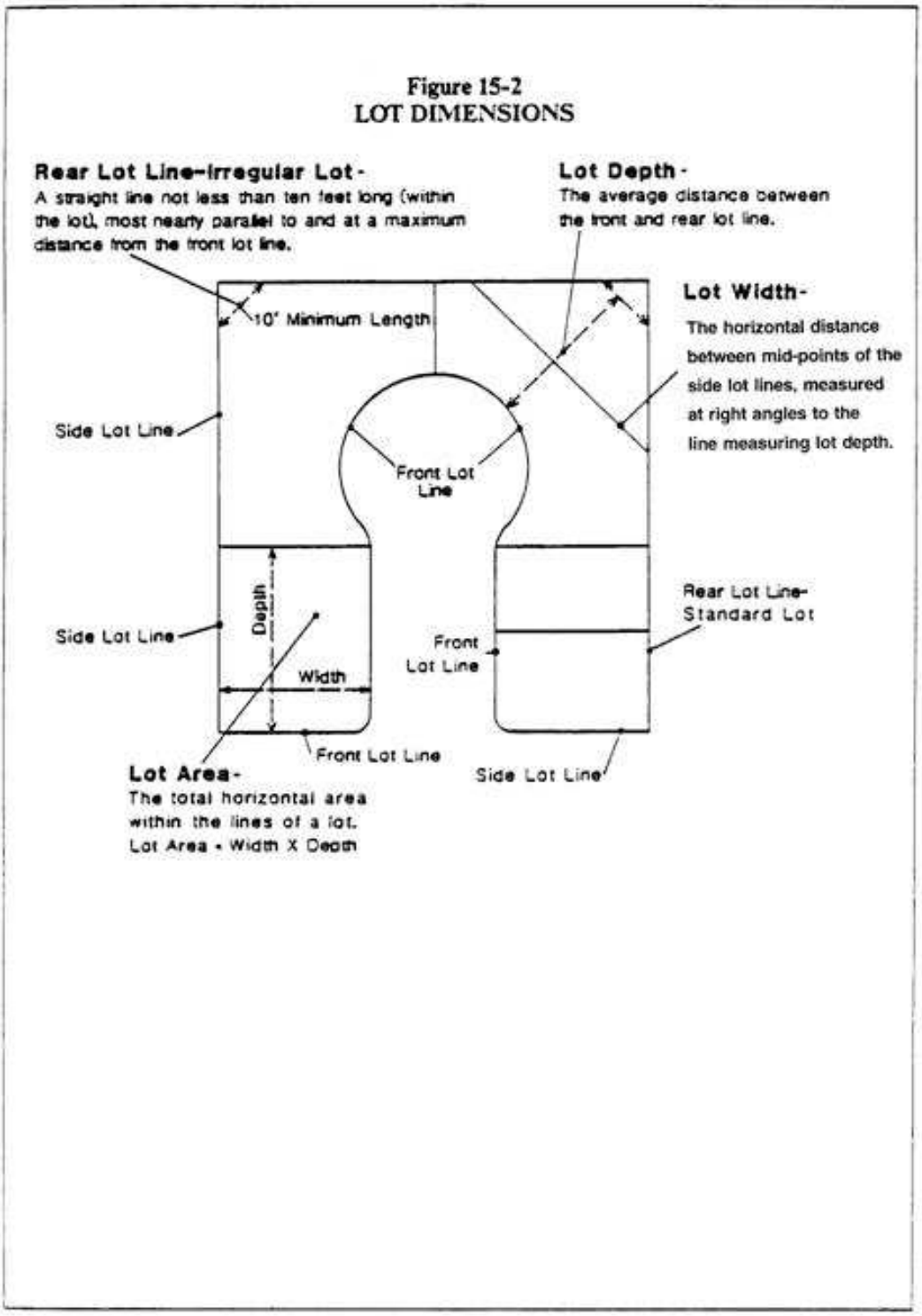
(Ord. C-6533 § 1 (part), 1988)

Figure 15-1
LOT TYPES



(Ord. C-6533 § 1 (part), 1988)

Figure 15-2
LOT DIMENSIONS



(Ord. C-7607 § 7, 1999; Ord. C-6533 § 1 (part), 1988)

Figure 15-3
YARDS AND SETBACKS

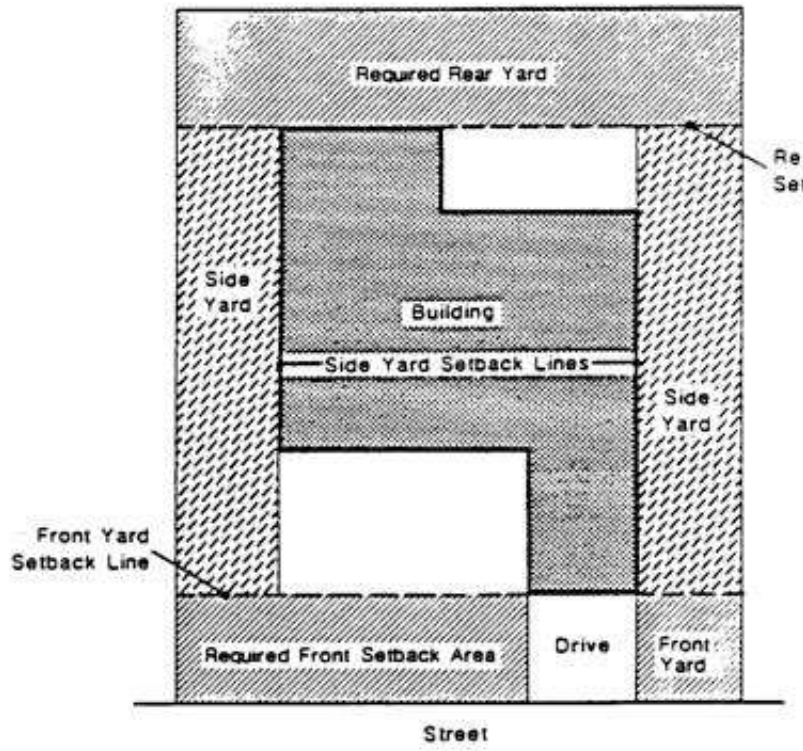
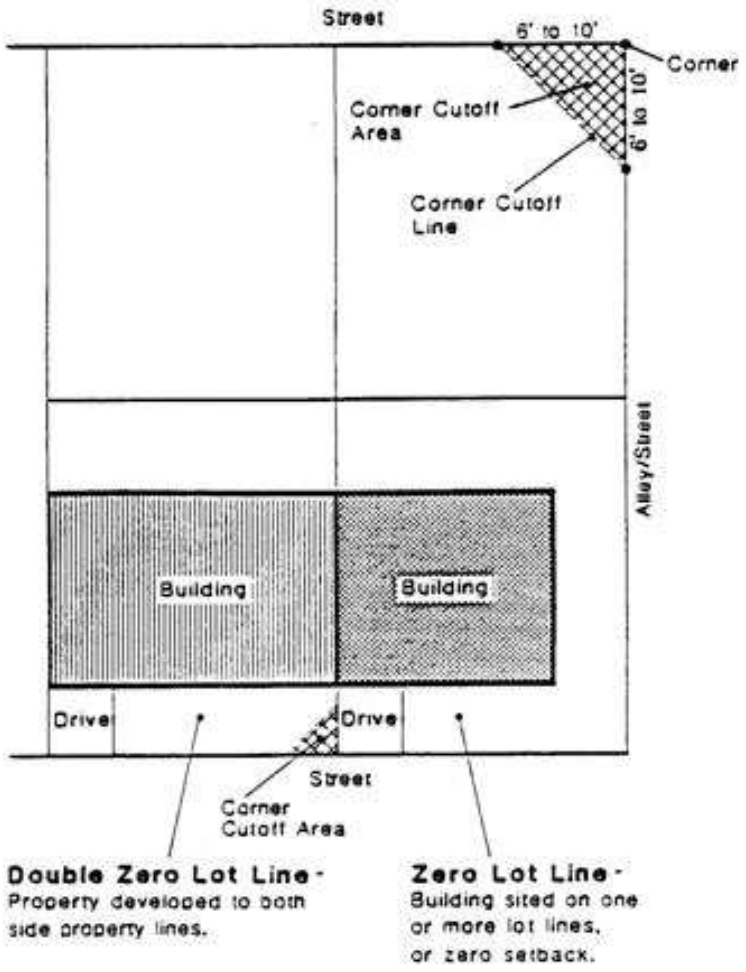


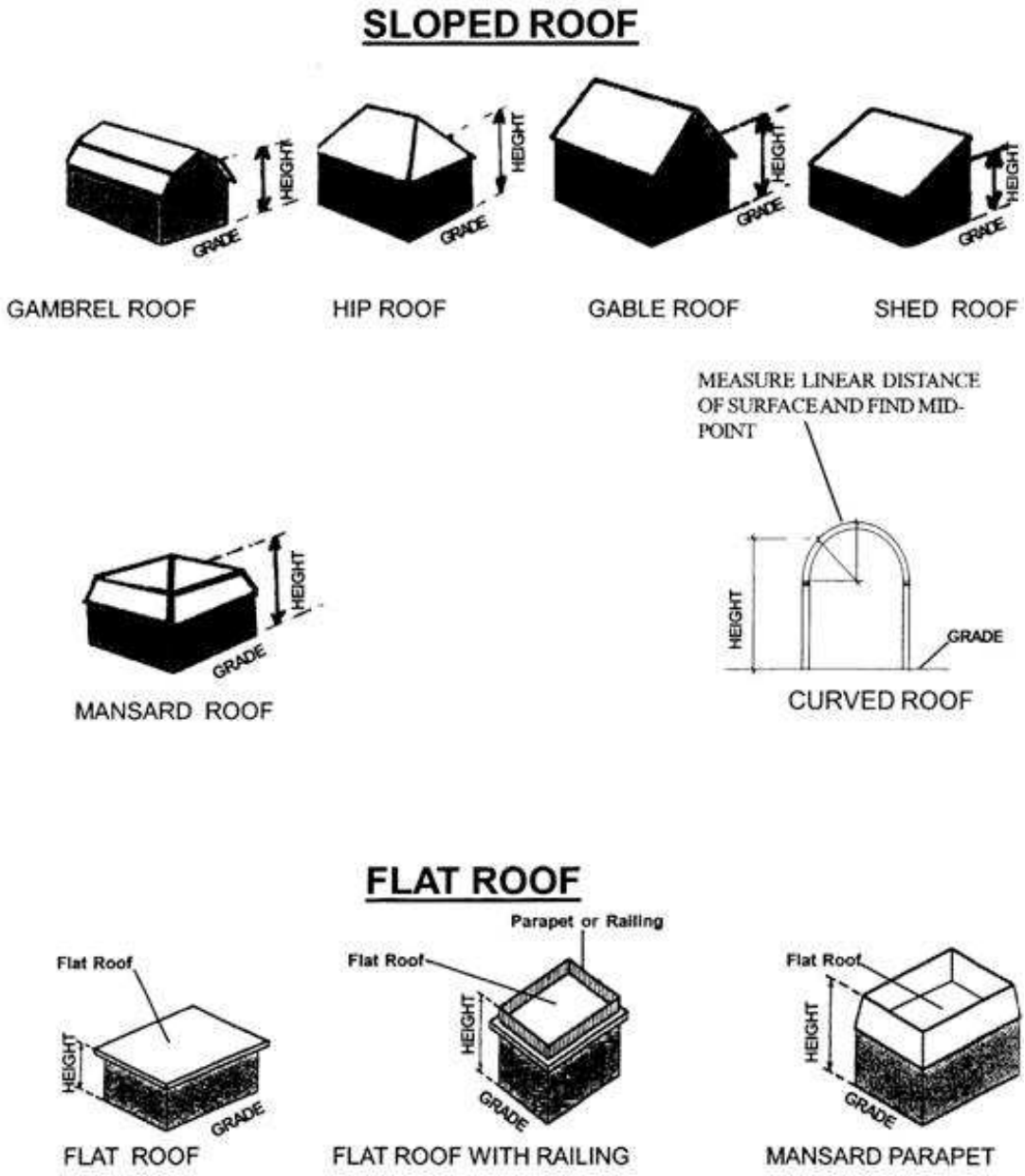
Figure 15-4
CORNER CUTOFF AND ZERO LOT LINE



(Ord. C-6533 § 1 (part), 1988)

Figure 15 - 5

Height of Buildings

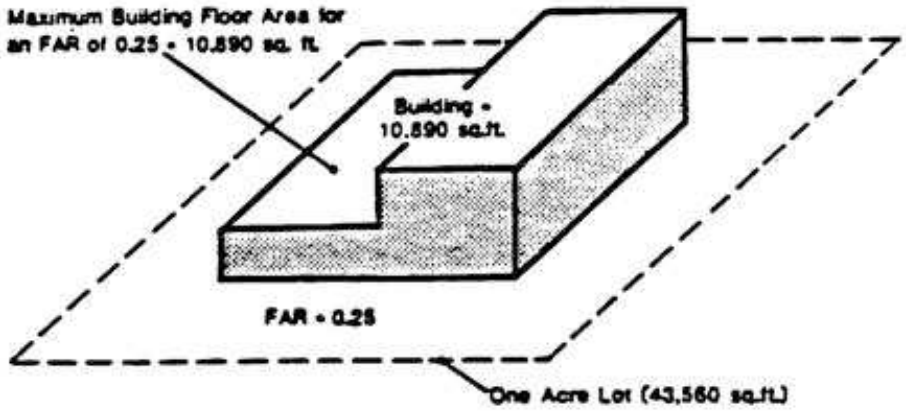


(Ord. C-7776 § 7, 2001)

Figure 15-6

FLOOR AREA RATIO (FAR)

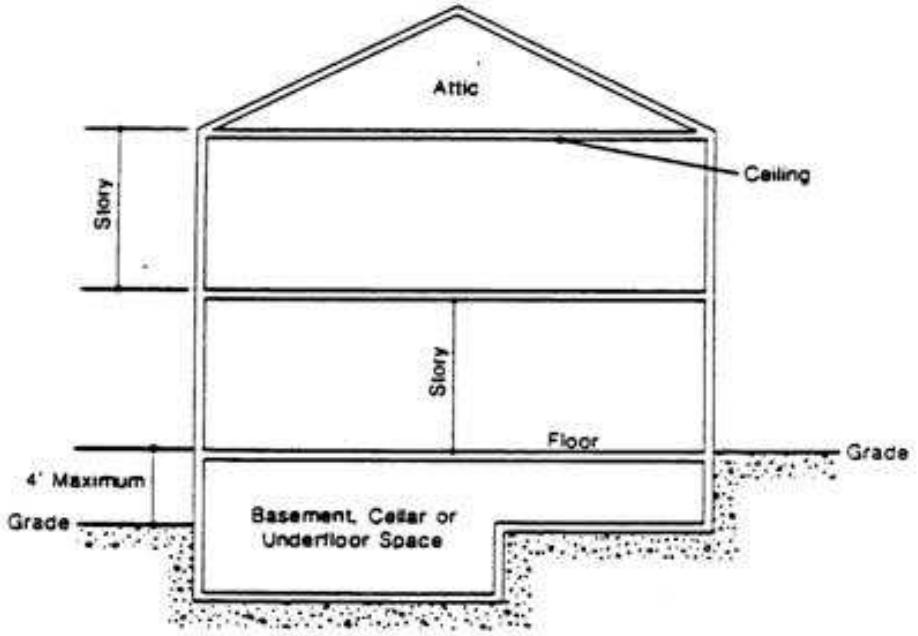
$$FAR = \frac{\text{Total Combined Area of All Floors of Building}}{\text{Lot Area}}$$



FAR means the numerical value obtained by dividing the gross floor area of a building or buildings located on a lot or parcel of land by the total area of the lot or parcel of land.

Figure 15-7
STORY

"Story" means that portion of a building between the surface of any floor and the surface of the floor next above it, or if there is no floor above it, then the space between the floor and the ceiling next above it.



(Ord. C-6533 § 1 (part), 1988)

CHAPTER 21.21 ADMINISTRATIVE PROCEDURES

DIVISION I.

HEARING BODIES

21.21.101 Hearings—General.

This Chapter is intended to establish administrative procedures for all types of matters, permits and approvals for which action is provided in this Title 21. Public hearings shall be conducted in connection with each of the procedures so established by such hearing bodies and officers as are indicated in Table 21-1.

(Ord. C-6533 § 1 (part), 1988)

21.21.105 Hearing bodies.

Four (4) hearing bodies or officers shall make decisions on the various procedures provided for in this Title 21 as follows:

A. **City Council.** The City Council shall be responsible for actions indicated in Table 21-1. City Council actions on zoning amendments and rezonings are hearings and shall follow the noticing procedures set forth in this Chapter.

B. **Planning Commission.** The Planning Commission shall be responsible for the hearings indicated in Table 21-1.

C. **Zoning Administrator.** The Zoning Administrator is established to provide, among other things, a hearing officer to conduct public hearings as specified in Table 21-1. The Zoning Administrator shall be a Planning Officer designated by the Director of Planning and Building with the approval of the Planning Commission. In the absence of the Zoning Administrator, the Director of Planning and Building may assume the responsibilities of the Zoning Administrator or may designate a Planner III or other higher designation.

D. **Site Plan Review Committee.** The Site Plan Review Committee shall consist of the Director of Planning and Building and two (2) planning officers designated by him/her.

(Ord. C-7247 § 1, 1994: Ord. C-6933 § 5, 1991; Ord. C-6895 § 3, 1991: Ord. C-6533 § 1 (part), 1988)

DIVISION II.

INITIATION OF PROCEDURES

21.21.201 Application.

A. General. Any procedure provided for in this Title 21, including, but not limited to, amendment of the Zoning Regulations, change of a zoning district, issuance of conditional use permits, variances, administra-tive use permits, site plan review, classification of uses and density bonuses may

be initiated by application of the owner of any real property in the City directly affected by the procedure, or his authorized agent. The Director of Development Services may request proof of ownership or authorization to apply prior to acceptance of any such application.

B. Zoning and Zoning Regulations. An amendment to the Zoning Regulations and a change of zoning district may also be initiated by:

1. Direction by action of the City Council or the Planning Commission; or

2. Direction of the Director of Development Services with the consent of the Planning Commission.

C. Filing Fee. A filing fee shall accompany each application as required by Section 21.21.701.

D. Complete Application. No application shall be considered complete until applicable forms are filed, the required fee is paid, and additional information as required by the Director of Development Services, is received. The Director of Development Services shall determine when an application is complete, and the determination of the Director shall be final.

(ORD-20-0018 § 1, 2020; Ord. C-6533 § 1 (part), 1988)

Table 21-1 Discretionary Review Responsibilities

Type of Procedure	Responsible Hearing Body				Notice Required[d]
	SPRC	ZA	PC	CC	
Zoning regulations amendment:					
Initial hearing			X		Yes
Final decision				X	Yes
Zone change:					
Initial hearing			X		Yes
Final decision				X	Yes
Conditional use permit:					
Initial hearing			X		Yes
Appeal				X	Yes
Variance:					
Initial hearing		X	X[c]		Yes
Appeal			X	X[c]	Yes
Administrative use permit:					
Initial hearing		X	X[c]		Yes
Appeal			X	X[c]	Yes
Site plan review:					
Initial hearing	X		X[a]		No
Appeal			X	X[a]	No
Classification of uses:					
Initial hearing		X			No
Final decision			X		No

Type of Procedure	Responsible Hearing Body				Notice Required[d]
	SPRC	ZA	PC	CC	
Establishment of planned development district:					
Initial hearing			X		Yes
Final decision				X	Yes
Applicability of use/development standard in planned development districts:					
Initial Hearing		X			
Appeal			X		
Special setback lines:					
Initial hearing			X		Yes
Final decision				X	Yes
Local coastal permit:					
Initial hearing		X	X[c]		Yes
Appeal[b]			X	X[c]	Yes
Determination of applicable law:					
Initial hearing			X		Yes
Appeal				X	Yes
Interim park use permit:					
Initial hearing				X	Yes
Appeal				None	
Temporary Activating Use (TAU) permit:					
Initial hearing		X			
Appeal			X		
Establishment of specific plans:					
Initial hearing			X		Yes
Final decision				X	Yes
Applicability of use/development standards in specific plans:					
Initial hearing		X			
Appeal			X		

Abbreviations:

SPRC = Site Plan Review Committee; ZA = Zoning Administrator; PC = Planning Commission; CC = City Council

(a) Planning Commission establishes types of projects subject to Planning Commission review. Such projects can be appealed to the City Council.

(b) Also appealable to California Coastal Commission if the project site is located within the appealable area.

(c) The Zoning Administrator may refer such application to the Planning Commission for consideration. In this case, the City Council shall serve as the appeal body.

(d) See Section 21.21.302 (Noticing of hearings) for noticing requirements.

(ORD-26-0017 § 4, 2026; ORD-20-0018 § 2, 2020; ORD-16-0009 § 1, 2016; Ord. C-7378 § 2, 1995)

DIVISION III.

NOTICING OF HEARINGS

21.21.302 Noticing requirements for hearings.

A. **General.** Notice shall be given for all hearings requiring notice as set forth in Table 21-1 not less than fourteen (14) days, nor more than forty-five (45) days prior to the hearing. In addition to the

notice required by this Section, the City may give notice of the hearing in any other manner it deems necessary or desirable, but, in any event, notice shall be given by the means set forth in this Section.

B. **For Noticing of Zone Changes and Other Specified Procedures.** For noticing of a zone change, conditional use permit, standards variance, administrative use permit, planned development district, local coastal permit, special setback lines, density bonus, or any other planning or zoning matter not otherwise specifically provided for herein:

1. **Owners and Occupants.** Notice of hearing shall be mailed or delivered to the owner of the subject real property or to the owner's duly authorized agent. One (1) notice of hearing shall also be mailed or delivered to each tenant household or to each commercial tenant as applicable, of the subject real property;

2. **Project Applicant.** Notice shall be mailed or delivered to the project applicant;

3. **Local Agencies.** Notice of the hearing shall be mailed or delivered to each local agency expected to provide water, sewage, streets, roads, schools or other essential facilities or services to the project, whose ability to provide those facilities and services may be significantly affected;

4. **Public Notification.**

a. (1) For residential or commercial projects, notice of the hearing shall be mailed or delivered to all owners of real property as shown on the latest equalized assessment roll within three hundred feet (300') of the real property that is the subject of the hearing. Notice of hearing shall also be mailed or delivered to all tenants, as applicable, of real property that is located within three hundred feet (300') of the real property that is subject to the hearing.

(2) For all industrial, institutional or City projects, notice of the hearing shall be mailed or delivered to all owners of real property as shown on the latest equalized assessment roll within one thousand feet (1,000') of the real property that is the subject of the hearing. Notice of hearing shall also be mailed or delivered to all tenants, as applicable, of real property that is located within one thousand feet (1,000') of the real property that is subject to the hearing.

(3) The notification radius for mailed notices shall be extended in the following circumstances:

i. Projects that are outside of, but within three hundred feet (300'), of any residential zone - extend radius by that distance, for a notification radius of 300 feet plus distance from closest residential zone.

ii. Projects requesting reduced or shared parking: extend radius by 450 feet, for a notification radius of 750 feet.

iii. When the use has a buffer requirement (such as a 500-foot separation), increase the notification radius to match the buffer requirement.

iv. When project falls within more than one (1) category described in subsections i—iv, the greater requirement shall prevail.

(4) For notices on City-owned property in the Port of Long Beach and the Long Beach Airport, notices shall also be mailed and delivered to the leasehold interests on those properties. Notices sent to leaseholders shall count in determination of the twenty (20) notice minimum.

(5) In lieu of utilizing the assessment roll, the City may utilize records of the county assessor or tax collector which contain more recent information than the assessment roll. In no event shall less than a minimum of twenty (20) nearest property owners, or owners and leaseholders as specified above, be notified.

(6) Notice of the hearing shall also be mailed or delivered to resident managers of any multifamily residential rental units where the property owner is not an on-site occupant when the fact of non-occupancy is known to the person charged with the responsibility of mailing or delivering notice.

(7) Measurement of the distance for notification pursuant to this Subsection shall begin at the property boundary of the real property that is the subject of the hearing.

(8) Whenever the number of properties to whom notice would be mailed or delivered exceeds one thousand 1,000, the City may provide notice by placing a display advertisement of at least one-eighth (1/8) page in at least one (1) newspaper of general circulation within the jurisdiction where the hearing is being conducted.

(9) All notices, regardless of radius, shall be posted to the City's website, along with other forms of electronic communication that are specified with an approved electronic communications policy.

b. In a City-initiated zoning remapping program, if the number of properties to whom notice would be mailed or delivered pursuant to this Subsection is greater than one thousand (1,000), the City, in lieu of mailed or delivered notice, may provide notice by placing a display advertisement of at least one-eighth (1/8) page in at least one (1) newspaper of general circulation within the local agency in which the proceeding is conducted at least ten (10) and not more than forty-five (45) days prior to the hearing; and

5. **Posting.**

a. Notice of the hearing shall be posted at least fourteen (14) days prior to the hearing in at least three (3) public places within the boundaries of the City, including one (1) public place in the

area, if any, most directly affected by the proceedings. In addition, the applicant or owner of the real property which is the subject of the hearing shall post a sign of at least thirty inches (30") by forty inches (40") on each street face of the real property that is the subject of the hearing, the content of which sign shall be subject to the prior approval of development services staff.

b. Building height variance applicants shall erect story poles which accurately represent the full extent of the proposed structure to the satisfaction of the Director of Development Services, including decks and eaves, at least fourteen (14) calendar days prior to the first public hearing and remain in place through the end of the appeal period.

6. **Noticing of Actions in the Coastal Zone.** Additionally, when notice is required to be given for any matter in the coastal zone, in addition to any and all other notices required by this Subsection, notice shall be mailed to the California Coastal Commission and to all persons requesting notice for the individual matter or for all coastal zone hearings, and to all residents within one hundred feet (100') of the site.

C. **For noticing of a zoning ordinance amendment:**

1. **Publishing Advertisement.** Notice of the hearing shall be published pursuant to Section 6061 of the California Government Code in at least one (1) newspaper of general circulation within the City;

2. **Posting.** Notice of the hearing shall be posted at least fourteen (14) days prior to the hearing in at least three (3) public places within the boundaries of the City, including one (1) public place in the area, if any, most directly affected by the proceeding;

3. **Mailing.** Notice of the hearing shall be mailed, together with all proposed changes, additions, modifications or deletions to all City libraries and to anyone requesting such notice; and

4. **Amendments in the Coastal Zone.** For any matter in the coastal zone, in addition to any and all other notices required by this Subsection, notice shall be mailed to the California Coastal Commission and to all persons requesting notice for the individual matter or for all coastal zone hearings, and to all residents within one hundred feet (100') of the site.

D. **For Noticing of Appeals:**

1. **Responsibility for Noticing.** A notice of the public hearing on the appeal shall be mailed by the Department of Development Services for appeals to the City Planning Commission, and by the City Clerk for appeals to the City Council.

The notice shall contain the same information as the original notice except that it shall also give the appellant's name and state that the hearing is an appeal.

2. **Persons to be Noticed.** Notice of the hearing shall be mailed to the applicant and to all persons entitled to mailed notice and to any known aggrieved person, as specified in Subsection 21.21.302.B, not less than ten (10) days prior to the hearing. A person shall not be considered aggrieved for purposes of receiving this notice if the only indication of interest is the signing of a petition unless that person indicates on the petition that he wishes to receive notice.

3. **Appeals in the Coastal Zone.** For any matter in the coastal zone, in addition to any and all other notices required by this Subsection, notice shall be mailed to the California Coastal Commission and to all persons requesting notice for the individual matter or for all coastal zone hearings, and to all residents within one hundred feet (100') of the site.

(ORD-18-0025 § 8, 2018; ORD-09-0016 § 1, 2009; ORD-08-0020 § 1, 2008; Ord. C-7247 § 2, 1994; Ord. C-7032 § 7, 1992; Ord. C-6589 § 1, 1989)

21.21.304 Content of notices.

All notices shall contain, as a minimum, the following information:

A. The applicant's name;

B. The filing date;

C. The case number for the project;

D. The location of the project, including an indication of whether it is in the coastal zone;

E. An indication of whether the project is appealable to the Coastal Commission;

F. A description of the project;

G. The reason for the public hearing;

H. The date, time and place of the public hearing;

I. The general procedures for the hearing and the receipt of public comments;

J. The means for appeal, including an appeal to the Coastal Commission when applicable; and

K. A statement stating substantially the following:

"If you challenge the action in court, you may be limited to raising only those issues you or someone else raised at the public hearing described in this notice, or issues raised via written correspondence delivered to the (public entity conducting the hearing) at or prior to the public hearing".

(Ord. C-6533 § 1 (part), 1988)

21.21.306 Evidence of notice.

A. **Documentation.** When notice for any hearing is given pursuant to this Division, the following documentation shall be deemed sufficient to serve as proof that such notice was given pursuant to the requirements of law:

1. **Publication.** When notice is given by publication, an affidavit of publication by the newspaper in which publication is made showing, among other things, the date or dates of publication;

2. **Mailing or Delivery.** When notice is given by mailing or delivery, an affidavit or proof of mailing/delivery showing, among other things, the date or dates of mailing/delivery, the person making such mailing/delivery and the persons and entities to which mailing/delivery is made;

3. **Posting.** When notice is given by posting, an affidavit or proof of posting showing, among other things, the date or dates of posting, the person making or causing such posting to be made and the location at which posting was made.

B. **Official Files Required.** All documentation provided for in this Section shall be maintained in the official files of the hearing for which notice was given.

C. **Failure to Provide Documentation or Receive Notice.** Failure of documentation to be prepared or maintained pursuant to this Section shall not constitute grounds for any court to invalidate the actions of the City for which the notice was given nor shall the failure of any person or entity to receive notice given pursuant to this Division constitute grounds for any court to invalidate the actions of the City for which the notice was given.

(Ord. C-6533 § 1 (part), 1988)

DIVISION IV.

CONDUCT OF HEARINGS AND EFFECT OF ACTION

21.21.401 Purpose and right to comment.

A. **Purpose.** The purpose of this Division IV is to set forth procedures for the conducting of public hearings as a means of providing decision-makers with a method for receiving and considering comments on various discretionary matters considered by them under the provisions of this Title 21 prior to acting on such matters.

B. **Right to Comment.** Prior to the public hearing, any person affected by the pending application may file with the Department of Planning and Building a written statement either supporting or objecting to the application. Any such person may also appear at a public hearing to present oral testimony.

(Ord. C-6533 § 1 (part), 1988)

21.21.402 Action by hearing body.

A. Following the completion of testimony at a public hearing, action shall be taken to approve, conditionally approve, partially approve, deny, continue or take under advisement the subject of the public hearing.

B. Hearings continued to a date certain shall be exempt from re-noticing in accordance with Division III "Notice of Hearings."

(ORD-19-0028 § 5, 2019; ORD-08-0020 § 2, 2008: Ord. C-6533 § 1 (part), 1988)

21.21.403 Permit denial—Reapplication.

Whenever an application has been denied and the denial becomes final, no new application for the same or similar request may be accepted within one (1) year of the denial date, unless the Zoning Administrator finds that a sufficient change in circumstances has occurred to warrant a new application.

(Ord. C-6533 § 1 (part), 1988)

21.21.404 Continuing jurisdiction.

The Director of Planning and Building shall have continuing jurisdiction over all permits issued and approvals given under the provisions of this Title and shall be responsible for monitoring compliance with the provisions and conditions of issuance or approval.

(Ord. C-6533 § 1 (part), 1988)

21.21.405 Modification of permits.

An approved permit, variance or other entitlement may be modified as long as the modification is found to further the purposes of the Zoning Regulations. The hearing body which granted the original approval must consider and act on the modification within sixty (60) days of receiving the modification request. If the Zoning Administrator finds that the modification will not significantly alter the original approved action, notice of hearing on the requested modification shall be given to any person or entity whom the Zoning Administrator determines was aggrieved at the original hearing. If the Zoning Administrator finds that the modification may significantly alter the original approved action, notice of hearing on the requested modification shall be given as required for an initial hearing as shown on Table 21-1. For the purposes of this Section, a significant alteration shall include, but is not limited to, a request to relocate the project to a new location other than that approved by the permit, or a request to change the size of the project as approved by the permit by more than ten percent (10%).

(Ord. C-7663 § 3, 1999: Ord. C-6533 § 1 (part), 1988)

21.21.406 Expiration.

A. Except as otherwise provided in the conditions of approval, every right or privilege authorized under this Title shall terminate three (3) years after the granting of the request and be of no further force and effect if the right or privilege has not been commenced within that two-year period. The termination will take effect without further City action if a timely request for extension of time has not been made or is denied. Any interruption or cessation necessitated by publicly declared emergency, fire, flood, earthquake or act of war or vandalism or cessation shall not result in the termination of the right or privilege.

B. Upon written request received prior to the expiration of the permit, a one (1) year extension of the right or privilege may be granted by the Zoning Administrator. The request may be granted upon a finding that no substantial change of circumstances has occurred and that the extension would not be detrimental to the purpose of the Zoning Regulations. Notice of the requested extension

shall be given to any person determined by the Zoning Administrator to have been aggrieved at the original hearing. Any person aggrieved by the Zoning Administrator's decision on an extension request may appeal that decision to the Planning Commission.

C. Any right or privilege approved under this Title between January 1, 2018 and the effective date of this ordinance shall be effective for a period of forty-eight (48) months from the date of issuance at which time it will expire and be of no further force or effect.

(ORD-20-0023 § 1, 2020; ORD-16-0028 § 9, 2016; Ord. C-6533 § 1 (part), 1988)

DIVISION V.

APPEALS

21.21.501 Authorization and jurisdiction.

A. Authorization. Any aggrieved person may appeal a decision on any project that required a public hearing. Pursuant to Section 21.15.120, an Aggrieved person is any person who testified personally or through a representative at a public hearing; or who informed the staff of the Department of Development Services in writing prior to the hearing of an interest in the subject of a hearing.

B. Jurisdiction. The Planning Commission shall have jurisdiction on appeals of interpretations made pursuant to Section 21.10.045 and decisions issued by the Zoning Administrator and Site Plan Review Committee, and the City Council shall have jurisdiction on appeals from the Planning Commission as indicated in Table 21-1. Decisions lawfully appealable to the California Coastal Commission shall be appealed to that body.

C. Except as specified by this Code, decisions that are recommendations to the Planning Commission or to the City Council are not subject to appeal.

(ORD-19-0011 § 2, 2019; Ord. C-7326 § 5, 1995: Ord. C-6533 § 1 (part), 1988)

21.21.502 Time to file appeal.

An appeal must be filed within ten (10) days after the decision for which a public hearing was required is made.

(Ord. C-6533 § 1 (part), 1988)

21.21.503 Form of filing.

All appeals shall be filed with the Department of Planning and Building on a form provided by that Department.

(Ord. C-6533 § 1 (part), 1988)

21.21.504 Time for conducting hearing of appeals.

A public hearing on an appeal shall be held:

A. In the case of appeals to the Planning Commission, within sixty (60) days of the date of filing of the appeal with the Department of Planning and Building; or

B. In the case of appeals to the City Council, within sixty (60) days of the receipt by the City Clerk from the Department of Planning and Building of the appeal filed with the Department.

C. The Director of Development Services may provide an extension of the period for an appeal to be adjudicated for up to ninety (90) days.

(ORD-19-0011 § 3, 2019; Ord. C-6533 § 1 (part), 1988)

21.21.505 Findings on appeal.

All decisions on appeal shall address and be based upon the same conclusionary findings, if any, required to be made in the original decision from which the appeal is taken.

(Ord. C-6533 § 1 (part), 1988)

21.21.506 Finality of appeals.

A. **Decision Rendered.** After a decision on an appeal has been made and required findings of fact have been adopted, that decision shall be considered final and no other appeals may be made except:

1. Projects located seaward of the appealable area boundary, as defined in Section 21.25.908 (Coastal Permit—Appealable Area) of this Title, may be appealed to the California Coastal Commission; and

2. Local coastal development permits regulated under the City's Oil Code may be appealed to the City Council.

B. **No Appeal Filed.** After the time for filing an appeal has expired and no appeal has been filed, all decisions shall be considered final, provided that required findings of fact have been adopted.

C. **Local Coastal Development.** Decisions on local coastal development permits seaward of the appealable area shall not be final until the procedures specified in Chapter 21.25 (Coastal Permit) are completed.

(Ord. C-6533 § 1 (part), 1988)

21.21.507 Appeals from Harbor Department environmental determinations.

A. **Appellants.** Any person who appeared before the Board of Harbor Commissioners (the "Board") and objected to the Board's: (1) certification of an environmental impact report, (2) approval of a negative declaration or mitigated negative declaration, or (3) determination that a project is not subject to the California Environmental Quality Act ("CEQA") (collectively "environmental determinations"), may appeal that environmental determination to the City Council.

B. **Time to File an Appeal.** An appeal of an environmental determination by the Board ("appeal") must be filed within ten (10) business days after the environmental determination.

C. **Filing Fee.** No filing fee will be charged for an appeal.

D. **Place to File.** An appeal must be filed with the City Clerk.

E. **Contents of Appeal.** There is no required form for an appeal, but all appeals shall be in writing and shall contain the following information:

1. The name, address and telephone number of the person filing the appeal (the "appellant").

2. All grounds for the appeal, specifying in detail why the appellant contends that the environmental determination does not comply with CEQA.

3. Evidence that each ground for the appeal was submitted to the Board by the appellant or another person before the environmental determination.

4. All documentation the appellant relies on in support of the appeal.

F. **Effect of an Appeal.** The filing of an appeal will stay the effect of: (1) the environmental determination; (2) any project approval made pursuant to the environmental determination; and (3) any notice of determination; until the City Council renders a decision on the appeal.

G. **Hearing on the Appeal.** The City Clerk shall set a hearing on the appeal on the agenda of the City Council not more than sixty (60) days from the date the appeal is filed with the City Clerk.

H. **Notice of Hearing.** The City Clerk shall provide notice of the hearing to the appellant and to the board not less than ten (10) business days before the hearing.

I. **Conduct of the Hearing.** The appellant shall have an opportunity to present its grounds for contending that the environmental determination does not comply with CEQA and the harbor department shall have an equal opportunity for rebuttal. Any other interested persons shall be limited to three (3) minutes each to state their views on the appeal.

J. **City Council Decision.** Following the hearing, the City Council may either: (1) deny the appeal and affirm the environmental determination; or (2) grant the appeal, set aside the environmental determination and remand to the Board.

(ORD-06-0020 § 1, 2006)

DIVISION VI.

REVOCATIONS

21.21.601 Revocations.

Except as otherwise provided, upon determination that there has been a violation of the terms or conditions or lawful requirements or provisions of any permit or approval provided by this Title, the Zoning Administrator shall schedule a public hearing before the City Council, Planning Commission or Zoning Administrator, whichever granted the permit or approval, to determine if the permit or approval should be revoked.

(Ord. C-6533 § 1 (part), 1988)

21.21.605 Procedures for revocation.

A. At the hearing the Zoning Administrator shall present evidence of the violation.

B. If the hearing body or Hearing Officer finds that the conditions have been violated and that the property owner has not made a good faith effort to comply, the permit or approval shall be revoked.

C. The property owner shall have the same right of appeal as would have been applicable if the initial application had been denied by the person or body granting the permit.

(Ord. C-6533 § 1 (part), 1988)

DIVISION VII.

FEES

21.21.701 Fees.

A. **Fees Required.** Every person submitting an application for any procedure, entitlement, permit or approval pursuant to this Title 21 shall pay a fee as set forth in the schedule of fees for Title 21 established by City Council resolution. Required fees shall be paid at the time of filing of any application.

B. **Purpose of Fees.** Such fees are imposed for the purpose of reimbursing the City for costs incurred in investigating and acting upon an application and for administering the provisions of this Title relating to the application.

C. **Refund of Fees.** Fees shall not be refunded if the City has incurred costs in connection with the application, but partial and prorated refunds may be granted by the City if projects are withdrawn prior to the public hearing.

(Ord. C-6533 § 1 (part), 1988)

DIVISION VIII.

LIMITATION OF ACTIONS

21.21.801 Exhaustion of administrative remedies.

No person shall commence or maintain any legal action under this Title 21 until that person has exhausted all administrative remedies.

(Ord. C-6533 § 1 (part), 1988)

21.21.805 Statute of limitations.

A. Any legal action or proceeding to attack, review, set aside, void or annul any decision or matter or proceedings provided in this Title shall be commenced within thirty (30) days after the decision becomes final; except that legal action on developments in the coastal zone taken under the provisions of Division 20, Chapter 9, Section 30000 et seq., of the Public Resources Code shall be commenced within sixty (60) days after the decision becomes final.

B. Thereafter, all persons are barred from bringing the action or proceedings or from raising any issue of invalidity or unreasonableness of the decision.

(Ord. C-6533 § 1 (part), 1988)

CHAPTER 21.25 SPECIFIC PROCEDURES

DIVISION I.

ZONE CHANGES AND ZONING REGULATION AMENDMENTS

21.25.101 Zone changes and zoning regulation amendments.

A. **Initiation.** Zone changes and ordinance amendments may be initiated as provided for in Section 21.21.201.

B. **Jurisdiction.** The City Council shall have the sole authority to rezone a property or to change the text of the Zoning Regulations. However, the City Council shall not act to rezone property or to change the text of the Zoning Regulations without first receiving a recommendation from the Planning Commission in accordance with this Title.

(ORD-19-0011 § 4, 2019; Ord. C-6533 § 1 (part), 1988)

21.25.103 Proceedings.

The process for rezoning property or amending the Zoning Regulations shall be as follows:

A. **Planning Commission.** The Planning Commission shall hear all proposals to rezone property or to change the text of the Zoning Regulations and shall recommend positive action on such matters to the City Council. Any action to deny a rezoning request or to change the text of the Zoning Regulations does not need to be transmitted to the Council. However, a recommendation to deny a rezoning may be appealed to the City Council.

1. **Transmittal to City Council.** Within sixty (60) days following positive Planning Commission action, the Commission's recommendation shall be transmitted by the Department of Planning and Building to the City Clerk for presentation to the City Council.

2. **Information Required.** The transmittal to the City Council shall give the reasons for the Commission's recommendation and shall indicate whether or not the decision was unanimous. In the event the decision was not unanimous, the view of the minority opinion shall also be disclosed.

B. **City Council.** Upon receipt of the recommendation of Planning Commission or notice of an appeal, the City Clerk shall set a time for consideration of the matter by the City Council.

1. **Noticing.** In addition to giving notice of the hearing as required by Section 21.21.302, the City Clerk shall also notify the Planning Commission through the Director of Planning and Building. The Planning Commission may delegate authority to the Director of Planning and Building to present orally the Planning Commission recommendation.

2. **Council Action.**

a. **Change Text of Zoning Regulations or Rezoning Property.** City Council action to adopt, revise, or reject any recommendation of the Planning Commission relating to a change in the text of the Zoning Regulations or to rezoning property shall require an affirmative vote of five (5) members of the City Council.

b. **Effect in Coastal Zone.** When an approved change in the text of the Zoning Regulations or a rezoning affects properties in the Coastal Zone, the change or rezoning shall be transmitted to the Coastal Commission for a determination of consistency with the certified local coastal program or an amendment thereto. The change in the text or rezoning shall not be effective in the Coastal Zone until after Coastal Commission approval.

(Ord. C-6595 § 6A, 1989; Ord. C-6533 § 1 (part), 1988)

21.25.106 Findings required.

In all cases, the Planning Commission and the City Council shall be required to make the following findings of fact before rezoning a parcel:

A. The proposed change will not adversely affect the character, livability or appropriate development of the surrounding area; and

B. The proposed change is consistent with the goals, objectives and provisions of the General Plan; and

C. If the proposed change is a rezoning of an existing mobile home park, that the requirements of Section 21.25.109 have been or will be fully met.

(Ord. C-6533 § 1 (part), 1988)

21.25.108 Timely action.

The Department of Planning and Building shall take all necessary steps to enable the Planning Commission to hear a proposal within one hundred twenty (120) days of receipt of the request from the

City Council, the Planning Commission or a private property owner. Any proposal initiated by the Director of Planning and Building shall be scheduled for Planning Commission hearing at the discretion of the Director of Planning and Building.

(Ord. C-6533 § 1 (part), 1988)

21.25.109 Special requirements—Rezoning of mobile home parks.

When any rezoning of an existing mobile home park is applied for, in addition to all other requirements of law, the applicant shall provide for the full cost of moving all mobile homes to a new location of the mobile home owner's choice or shall purchase the mobile home from the mobile home owner at fair market value (fair market value shall be determined by a licensed appraiser or realtor, acceptable to both the land owner and mobile home owner). The provision of moving expenses or purchase shall be the choice of the mobile home owner.

(Ord. C-6533 § 1 (part), 1988)

DIVISION II.

CONDITIONAL USE PERMITS

21.25.201 Purpose.

A. **Purpose.** The City recognizes that certain types of land use, due to the nature of the use, require individual review. Such review shall determine whether the type of use proposed, or the location of that use, is compatible with surrounding uses, or, through the imposition of development conditions, can be made compatible with surrounding uses. This Division establishes procedures for this review.

(Ord. C-6533 § 1 (part), 1988)

21.25.203 Application.

Notwithstanding the provisions of Section 21.21.201 (Application), the right to apply for a conditional use permit shall be limited to affected property owners or their agents. Applications for conditional use permits may be submitted only for those uses specified as conditional uses in the applicable zone district. If the proposed project does not comply with an applicable development standards, a separate standards variance application shall also be required.

(Ord. C-6533 § 1 (part), 1988)

21.25.205 Jurisdiction.

A. **Planning Commission.** The Planning Commission shall consider all applications for conditional use permits, except as set forth in Subsection 21.25.205.B., below. The decision of the Planning Commission shall be final unless the decision is appealed to the City Council.

B. **Exceptions.** Applications for the minor expansion of an existing conditional use shall be considered by the Zoning Administrator in accordance with the procedures for an administrative use

permit as set forth in Division IV of this Chapter. Such minor expansion is limited to twenty-five percent (25%) of the existing use and five thousand (5,000) square feet of building area. Any expansion exceeding this limit shall be considered a new conditional use and shall be subject to the fees and procedures established for a new conditional use. This exception does not apply to the sale of alcoholic beverages (on-premises or off-premises).

(Ord. C-6533 § 1 (part), 1988)

21.25.206 Required findings.

The following findings must be analyzed, made and adopted before any action is taken to approve or deny the subject permit and must be incorporated into the record of the proceedings relating to such approval or denial:

A. The approval is consistent with and carries out the General Plan, any applicable specific plans such as the local coastal program and all zoning regulations of the applicable district;

B. The proposed use will not be detrimental to the surrounding community including public health, safety or general welfare, environmental quality or quality of life;

C. The approval is in compliance with the special conditions for specific conditional uses, as listed in Chapter 21.52; and

D. The related development approval, if applicable, is consistent with the green building standards for public and private development, as listed in Section 21.45.400.

(ORD-09-0013, § 1, 2009; Ord. C-7032 § 8, 1992: Ord. C-6533 § 1 (part), 1988)

21.25.207 Timely action.

The Zoning Administrator shall set the matter for public hearing within sixty (60) days of receiving a completed application.

(Ord. C-6533 § 1 (part), 1988)

21.25.209 Waiver of required conditions.

Conditions required by Division II of Chapter 21.52 may be waived but only if the waiver of those conditions will not conflict with other required findings, provided that conditions necessary for the protection of public health, safety and welfare may not be waived under any circumstances.

(Ord. C-6533 § 1 (part), 1988)

21.25.211 Posting of conditions.

All conditions pertaining to the operation of the use shall be permanently posted, on a form provided by the Director of Planning and Building, at a location clearly visible to the public utilizing the facility.

This provision shall apply to all facilities for which a conditional use permit has been issued since May 4, 1979. All uses previously approved shall come into compliance with this requirement within sixty (60) days of being notified of the need to comply.

(Ord. C-6595 § 24, 1989)

21.25.212 Annual reinspection.

All projects for which a conditional use permit is approved shall be required to undergo an annual reinspection to verify compliance with the conditions of approval. The property owner shall be required to pay an annual fee to the City as established by the City Council to cover the costs of the reinspection program.

(Ord. C-6933 § 42, 1991)

DIVISION III.

STANDARDS VARIANCE

21.25.301 Purpose.

The City recognizes that certain properties, due to their unique size, shape, location or other physical condition, cannot be developed in strict accord with the regulations of this Title. Therefore, this Division establishes guidelines and procedures for the granting of relief from certain provisions in specific situations.

(Ord. C-6533 § 1 (part), 1988)

21.25.303 Applicability.

A. A variance shall grant relief from specific development standards of the Zoning Regulations and shall be known as a standards variance.

B. The standards variance procedure shall not apply to situations where the use is not permitted in a zone or the proposed residential density exceeds the maximum residential density permitted in a zone for any given lot size.

(Ord. C-6895 § 5, 1991; Ord. C-6533 § 1 (part), 1988)

21.25.305 Jurisdiction.

A. The Zoning Administrator shall have the authority to consider and act on requests for variances. The Zoning Administrator may approve, conditionally approve or deny a request. The Zoning Administrator's actions may be appealed to the Planning Commission.

B. Rather than act on a variance application, the Zoning Administrator may instead refer the application to the Planning Commission for consideration. In such cases, the hearing before the Planning Commission shall be held within ninety (90) days after the filing of the application.

(Ord. C-6533 § 1 (part), 1988)

21.25.306 Required findings.

The following findings must be analyzed, made and adopted before any action is taken to approve or deny the subject standards variance and must be incorporated into the record of proceedings relating to such approval or denial:

A. The site or the improvements on the site are physically unique when compared to other sites in the same zone;

B. The unique situation causes the applicant to experience hardship that deprives the applicant of a substantial right to use of the property as other properties in the same zone are used and will not constitute a grant of special privilege inconsistent with limitations imposed on similarly zoned properties or inconsistent with the purpose of the zoning regulations;

C. The variance will not cause substantial adverse effects upon the community; and

D. In the Coastal Zone, the variance will carry out the local coastal program and will not interfere with physical, visual and psychological aspects of access to or along the coast.

(Ord. C-7032 § 9, 1992; Ord. C-6533 § 1 (part), 1988)

21.25.309 Timely action.

Except as provided in Subsection 21.25.305.B, the responsible hearing body shall hold a public hearing on any variance request within sixty (60) days of receiving a completed application.

(Ord. C-6533 § 1 (part), 1988)

DIVISION IV.

ADMINISTRATIVE USE PERMITS

21.25.401 Purpose.

In order to streamline the project review process, the administrative use permit procedure is established to allow a simplified review process for projects which have insignificant effects on surrounding properties.

(Ord. C-6533 § 1 (part), 1988)

21.25.403 Application.

The administrative use permit process applies only to the following applications:

A. **Minor Expansion of Existing Conditional Use.** This applies to uses for which conditional use permits have been previously granted and to legal, nonconforming uses which now require a conditional use permit for the zone districts in which they are located. Such uses may be expanded through approval of an administrative use permit by twenty-five percent (25%) of the existing use, although the expansion may not exceed five thousand (5,000) square feet of additional floor area.

Any expansion exceeding these limits shall be considered a new conditional use and shall be subject to the review process established in Division II of this Chapter 21.25 (Conditional Use Permits) This application shall not apply to the sale of alcoholic beverages (on-premises or off-premises).

B. **Change From Legal Nonconforming Use to Another Nonconforming Use.** An existing, legal nonconforming use may be changed to another nonconforming use in accordance with the requirements of Section 21.27.070 (Nonconformities - Change in use) through approval of an administrative use permit.

C. **Modification of Permit.** Approved special use permits granted during or prior to 1979 may be modified through this process.

D. **Legalization of Illegal Units.** For units created prior to 1964, as set forth in Section 21.52.240.

E. **Fences in High Crime Districts.** Fence height may exceed three feet zero inches (3'0") in the front yard of residential lots located in high crime areas, through approval of an administrative use permit. (See Section 21.52.231.5 for criteria.)

F. Uses designated in Tables 31-1 (Residential Use Table), 32-1 (Commercial Use Table), 33-2 (Industrial Use Table), 34-1 (Institutional Use Table) and 35-1 (Park Use Table) or other provisions of this Title as administrative use permit uses.

G. New construction of a building with five thousand (5,000) square feet or more of floor area in the CNP zone (see Section 21.52.247).

H. Reduction of parking requirements in accordance with Section 21.41.223.

I. Other invocations of the Administrative Use Permit process in the Zoning Regulations not listed here.

(ORD-24-0033 § 13, 2024; Ord. C-7729 § 12, 2001; Ord. C-7663 § 4, 1999; Ord. C-7247 § 3, 1994; Ord. C-7032 § 10, 1992; Ord. C-6895 § 6, 1991; Ord. C-6595 § 7, 1989; Ord. C-6533 § 1 (part), 1988)

21.25.405 Jurisdiction.

A. **Zoning Administrator.** The Zoning Administrator shall have the authority to consider and act on requests for an administrative use permit. The Zoning Administrator may approve, conditionally approve or deny a request. The Zoning Administrator's actions may be appealed to the Planning Commission.

B. **Planning Commission.** Rather than act on an administrative use permit, the Zoning Administrator may instead refer the application to the Planning Commission for consideration. In such cases, the hearing before the Commission shall be held within ninety (90) days of the filing of the application.

(Ord. C-6533 § 1 (part), 1988)

21.25.407 Required findings.

The following findings must be analyzed, made and adopted before any action is taken to approve or deny the subject permit and must be incorporated into the record of the proceedings relating to such approval or denial:

A. The approval is consistent with and carries out the General Plan, any applicable specific plans such as the local coastal program and all Zoning Regulations of the applicable district;

B. The approval will not be detrimental to the surrounding community including public health, safety, general welfare, environmental quality or quality of life;

C. The approval is in compliance with the special conditions for the use enumerated in Chapter 21.52; and

D. The related development approval, if applicable, is consistent with the green building standards for public and private development, as listed in Section 21.45.400.

(ORD-09-0013, § 2, 2009; Ord. C-7032 § 11, 1992; Ord. C-6533 § 1 (part), 1988)

21.25.409 Timely action.

The Zoning Administrator, or Planning Commission or City Council on appeal, shall set the matter for decision within sixty (60) days of receiving a completed application.

(Ord. C-6533 § 1 (part), 1988)

21.25.412 Annual reinspection.

All projects for which an administrative use permit is approved shall be required to undergo an annual reinspection to verify compliance with the conditions of approval. The property owner shall be required to pay an annual fee to the City as established by the City Council to cover the costs of the reinspection program.

(Ord. C-6933 § 43, 1991)

DIVISION V.

SITE PLAN REVIEW

21.25.501 Purpose.

The site plan review process is established to meet certain community goals which are, among others, to ensure that the highest quality of land planning and design are incorporated into development projects, to ensure that new projects are compatible with existing neighborhoods in terms of scale, style and construction materials, and to ensure the maintenance, restoration, enhancement and protection of the environment.

(Ord. C-6533 § 1 (part), 1988)

21.25.502 Applicability.

A. **Standard.** The following projects shall require site plan review:

1. **Residential.** The following residential projects require site plan review:

   a. Five (5) or more units as one (1) project. This includes both new construction, as well as additions or adaptive reuse projects. This includes side by side projects by the same applicant where the total of new plus existing units equals five (5) or more;

   b. Construction of a new dwelling unit or an addition greater than four hundred fifty (450) square feet in size to an existing dwelling, located on a lot less than twenty-seven feet (27') in width in the R-1-N, R-1-M, R-2-N, and R-2-A districts;

   c. Any project proposing to utilize the incentive program established for very low and low income households; and

   d. Any residential project proposing to utilize a wing wall.

2. **Commercial.** The following commercial projects require site plan review:

   a. New buildings of one thousand (1,000) square feet or more;

   b. Additions of one thousand (1,000) square feet or more to an existing commercial building. However, an addition of up to five thousand (5,000) square feet may be permitted without site plan review if the addition is less than twenty-five percent (25%) of the floor area of the existing building and is not visible from a public way;

   c. Exterior remodeling of a building where the affected area consists of fifty feet (50') or more of building frontage in the CNA, CNP and CNR districts;

   d. Commercial storage uses; and

   e. Attached/roof-mounted cellular and personal communication services.

3. **Industrial or public assembly use.** Industrial or public assembly use projects with five thousand (5,000) square feet or more of floor area of new construction, except those located in the IP (Port) zoning district. Projects located in the IP zone shall be exempt from site plan review, except those projects which are located on a major arterial as defined by the Mobility Element of the General Plan.

4. **Adaptive Reuse.** Projects involving the reuse of existing spaces, structures or buildings as allowed under California Health and Safety Code Section 17958.11 for joint living and work quarters (live-work) or as allowed in LBMC Chapter 18.63, and subject to the Special Development Standards in LBMC Section 21.45.500.

5. **Project on City land.** All new construction projects with building floor area of five hundred (500) square feet or greater except roadway and utility maintenance or improvements.

6. **Sign standards waiver requests.** The City recognizes the visual and aesthetic importance that signage has on a development. Not only does signage identify the tenants of a particular space but it helps define and shape the unique architectural character and identity of a project. To this end, this sign standards waiver section has been introduced. The intent of this provision is to allow a greater amount of creativity and flexibility in the creation, design, and application of signage on developments beyond the established sign standards. The following sign projects shall require site plan review:

   a. Individual sign review requests for waiver of established sign standards;

   b. Sign programs as defined in Subsection 21.44.035.B; and

   c. Changeable copy signs.

7. **Project on City land in the coastal zone.** All projects involving five hundred (500) square feet or more of land or water area, except roadway and utility maintenance or improvement.

8. **Determination of nonconforming parking rights in area D of the coastal zone.** Requests for determination of nonconforming parking rights per Subsection 21.41.226.A.

B. **Conceptual.** The following projects shall also be required to apply for conceptual site plan review prior to filing for site plan review:

1. **Residential.** Residential projects of fifty (50) or more units;

2. **Commercial, industrial or public assembly.** Projects of fifty thousand (50,000) square feet or more of new construction;

3. **Project on City land.** Projects of one thousand (1,000) square feet or more of new construction.

(ORD-18-0030 § 5, 2018; ORD-14-0004 § 1, 2014; Ord. ORD-05-0039 § 2, 2005; Ord. C-7729 § 2, 2001; Ord. C-7726 § 1, 2001; Ord. C-7607 § 1, 1999; Ord. C-7550 § 3, 1998; Ord. C-7500 § 2, 1997; Ord. C-7399 § 1, 1996; Ord. C-7326 § 6, 1995; Ord. C-7247 § 4, 1994; Ord. C-7047 § 3, 1992; Ord. C-6684 § 17, 1990; Ord. C-6533 § 1 (part), 1988)

21.25.503 Jurisdiction.

A. **Site Plan Review Committee.** The Site Plan Review Committee shall consider all applications for site plan review. The Committee has the authority to approve, conditionally approve or deny a site plan application, provided that the authority to deny is not used to prohibit a permitted use on the property.

B. **Planning commission.** The Site Plan Review Committee shall refer specific types of projects to the Planning Commission in accordance with guidelines established by the Planning Commission. Any site plan review referred to the Planning Commission shall be reviewed using the procedures established for public hearing. However, the authority of the Commission shall be limited to the same authority as the Site Plan Review Committee.

C. **Director of Planning and Building.** The Director of Planning and Building shall have authority to conduct a conceptual site plan review on major projects. The conceptual site plan review shall result in a written report to the applicant indicating:

1. Whether site plan review will be done by the Site Plan Review Committee or the Planning Commission;

2. What other applications and/or reviews are necessary for the project as submitted;

3. A sequencing and time line for scheduling project reviews;

4. Identification of issues to be addressed; and

5. Identification of any pending or in process ordinance changes which may affect the project.

D. **Redevelopment Agency Board.**

1. **Design Review in Redevelopment Project Areas.** The Board of the Redevelopment Agency shall conduct architectural design review as part of the site plan review process for projects located in redevelopment project areas in accordance with the guidelines established by the Redevelopment Agency Board and the Planning Commission.

2. **Limited Jurisdiction of Site Plan Review Committee and Planning Commission.** Following approval of design development materials for a proposed project by the Redevelopment Agency Board, including a preliminary site plan, preliminary floor plans, and preliminary elevations, the Site Plan Review Committee or the Planning Commission shall conduct site plan review. The jurisdiction of this review shall be limited to a determination of compliance with the applicable development standards for the project (including, but not limited to, unit density, setbacks, building height, usable open space, screening of equipment, floor area ratio, landscaping, lot coverage, signage, and off-street parking); coordination of requirements from other City departments; and other requirements as applicable.

3. **Findings.** The approval by the Redevelopment Agency Board of design development materials for a proposed project shall be considered when the Site Plan Review Committee or Planning Commission makes findings as required in Section 21.25.506.

(Ord. C-7881 § 7, 2003; Ord. C-6684 § 18, 1990; Ord. C-6533 § 1 (part), 1988)

21.25.504 Notice.

As shown on Table 21-1, no notification is required for procedures conducted pursuant to this Division.

(Ord. C-6533 § 1 (part), 1988)

21.25.505 Conditions of approval.

The Site Plan Review Committee, or the Planning Commission, may require reasonable conditions of approval on a site plan which may include, but need not be limited to, requirements for:

A. A revised site plan;

B. Reduced building height, bulk or mass;

C. Increased setbacks;

D. Changes in building material;

E. Changes in rooflines;

F. Increased usable open space;

G. Increased screening of garages, trash receptacles, motors or mechanical equipment;

H. Increased landscaping;

I. Increased framing, molding or other detailing;

J. Change in color; or

K. Any other changes or additions the committee or commission feels are necessary to further the goals of the site plan review process.

(Ord. C-6533 § 1 (part), 1988)

21.25.506 Findings required.

The Site Plan Review Committee or the Planning Commission shall not approve a site plan review unless the following findings are made:

A. **Development Projects.**

1. The design is harmonious, consistent and complete within itself and is compatible in design, character and scale, with neighboring structures and the community in which it is located;

2. The design conforms to any applicable special design guidelines adopted by the Planning Commission or specific plan requirements, such as the design guidelines for R-3 and R-4 multifamily development, the downtown design guidelines, PD guidelines or the General Plan;

3. The design will not remove significant mature trees or street trees, unless no alternative design is possible;

4. There is an essential nexus between the public improvement requirements established by this ordinance and the likely impacts of the proposed development;

5. The project conforms with all requirements set forth in Chapter 21.64 (Transportation Demand Management), which requirements are summarized in Table 25-1; and

6. The approval is consistent with the green building standards for public and private development, as listed in Section 21.45.400.

7. The project is in compliance with the housing replacement requirements of the certified Local Coastal Program or Section 21.68.040.E of this Chapter, as applicable, and will result in the same or greater number of dwelling units; and in the case of existing affordable dwelling units, that the dwelling units will be replaced at the same or deeper affordability levels.

Table 25-1
Transportation Demand Management Ordinance Requirements

TDM Requirements	New Nonresidential Development		
	25,000+ Square Feet	50,000+ Square Feet	100,000+ Square Feet
Transportation information area	♦	♦	♦
Preferential carpool/vanpool parking		♦	♦

TDM Requirements	New Nonresidential Development		
	25,000+ Square Feet	50,000+ Square Feet	100,000+ Square Feet
Parking designed to admit vanpools		♦	♦
Bicycle parking		♦	♦
Carpool/vanpool loading zones			♦
Efficient pedestrian access			♦
Bus stop improvements			♦
Safe bike access from street to bike parking			♦
Transit review	For all residential and nonresidential projects subject to EIR		

B. **Sign Standards Waiver Requests.** Sign standards waiver requests can only be approved when positive findings are made for all of the following:

1. The proposed sign(s) enhance(s) the theme and/or architectural character of the proposed development and is consistent, compatible, and in scale within the development and/or neighborhood;

2. The sign design or application is not detrimental to and does not detract from the development or the surrounding community;

3. The proposed site or development is so unique that the application of standard signage would detract from the project;

4. For signs located seaward of the first public road inland from sea, the sign design and scale does not:

   a. Obstruct views to or along the coast from publicly accessible places;

   b. Adversely impact public access to and use of the water;

   c. Adversely impact public recreational use of a public park or beach; or

   d. Otherwise adversely affect recreation, access or the visual resources of the coast.

(ORD-23-0036 § 7, 2023; ORD-21-0034 § 2, 2021; ORD-09-0013, § 3, 2009; Ord. C-7881 § 1, 2003; Ord. C-7617 § 1, 1999; Ord. C-7500 § 3, 1997; Ord. C-7326 § 7, 1995; Ord. C-7247 § 5, 1994; Ord. C-6933 § 6, 1991; Ord. C-6533 § 1 (part), 1988)

21.25.507 Timely action.

Action shall be taken within the following number of days of acceptance of a complete application:

1. Conceptual site plan review: Thirty (30) days.

2. Site plan review: Sixty (60) days.

(Ord. C-6684 § 19, 1990; Ord. C-6533 § 1 (part), 1988)

21.25.508 Waiver of development standards.

A. **Waiver of Specific Standards.** During the site plan review, the Site Plan Review Committee may waive development standards for:

1. **Development Projects.**

   a. Privacy;

   b. Open space;

   c. Pedestrian access;

   d. Landscaping;

   e. Wrought iron fence height;

   f. Guest parking in projects located outside of a parking impacted area, provided that guest parking is not reduced below one (1) space for each six (6) units, and guest parking for low income units in projects with ten percent (10%) or more low income units;

   g. Tandem parking as valet parking;

   h. Required garage for residential projects of forty (40) units or more at densities of twenty-nine (29) units per acre or less;

   i. Subterranean parking in the front setback;

   j. Courtyard dimensions; and

   k. Setbacks in commercial zones for yards adjacent to residential use may be reduced to ten feet (10') for single-story commercial buildings.

2. **Signage Projects.**

   a. Size;

   b. Height;

   c. Location;

   d. Placement;

   e. Number of signs; and

   f. Type of sign.

The Committee or Commission may waive such standards only if it finds such a waiver improves project design. For signs located seaward of the first public road inland from the sea, the Committee or Commission may waive sign standards only if it finds such a waiver improves the project design and does not:

a. Obstruct views to or along the coast from publicly accessible places;

b. Adversely impact public access to and use of the water;

c. Adversely impact public recreational use of a public park or beach; or

d. Otherwise adversely affect recreation, access or the visual resources of the coast.

3. **LEED Certification.** The Director of Development Services may grant a project flexibility with certain development standards provided a commitment to LEED gold or higher certification is made, as set forth in Section 21.45.400.

B. **Limitations.** A waiver may or may not be granted if the waiver would in any way degrade the environment or result in any changes to classification of land use or to density. Development projects not required to file for site plan review may not apply in order to obtain a waiver for development standards.

(ORD-09-0013, § 4, 2009; Ord. C-7617 § 2, 1999; Ord. C-7500 § 4, 1997; Ord. C-7326 § 8, 1995; Ord. C-7047 § 4, 1992; Ord. C-6933 § 7, 1991; Ord. C-6895 § 7, 1991; Ord. C-6533 § 1 (part), 1988)

21.25.509 Environmental review.

For the purposes of the California Environmental Quality Act, site plan review may be considered a categorically exempt project.

(Ord. C-6533 § 1 (part), 1988)

DIVISION VI.

CLASSIFICATION OF USES

21.25.601 Purpose and jurisdiction.

A. **Purpose.** The classification of use procedure is established in recognition of the fact that zoning regulations relating to land use do not address every conceivable compatible land use which may be permitted within a given zone district. This procedure allows for the review of land use proposals not specifically permitted or prohibited in a zone district but which may be appropriate uses given their similar characteristics to other permitted uses.

B. **Jurisdiction.** The Zoning Administrator shall consider all classification of use applications and shall determine if the proposed use should be a permitted use in the zone under consideration. The Zoning Administrator's determination shall be filed with the Planning Commission for final action. Residential zones shall not be subject to this procedure.

(Ord. C-6533 § 1 (part), 1988)

21.25.602 Application.

Any person wishing to determine whether or not a specific use may be permitted in a specific zone district may file an application for classification of use.

(Ord. C-6533 § 1 (part), 1988)

21.25.603 Noticing.

As shown on Table 21-1, no notification is required for procedures conducted pursuant to this Division VI.

(Ord. C-6533 § 1 (part), 1988)

21.25.604 Findings required.

A use shall be determined to be a permitted use in a zone if it is found that:

A. Permitting the use in the zone will carry out the intent of the zone;

B. Permitting the use in the zone will carry out the General Plan, including the local coastal plan, when applicable;

C. The use is not a use specifically listed as a permitted, conditional or prohibited use in another zone generally considered to be less restrictive than the zone under consideration; and

D. The use is similar in scale, intensity of use and environmental impacts to uses permitted in the zone under consideration.

(Ord. C-6533 § 1 (part), 1988)

21.25.605 Timely action.

The Zoning Administrator shall hold a public hearing on any request for a classification of use within sixty (60) days of receiving a completed application.

(Ord. C-6533 § 1 (part), 1988)

21.25.606 Summary of action.

The Zoning Administrator shall make a written summary of the action. The summary shall include the required findings and shall be transmitted to the Director of Planning and Building, the Planning Commission, the applicant and any person requesting such summary. When the zone under consideration is located in the coastal zone, the summary shall also be transmitted to the Coastal Commission.

(Ord. C-6533 § 1 (part), 1988)

21.25.607 Effective date of action.

The action to classify a use shall become effective at the end of Planning Commission hearing unless, for projects in the coastal zone, the Executive Director of the Coastal Commission informs the Zoning Administrator that either:

A. The Coastal Commission did not receive notice of the action at least fourteen (14) days prior to the effective date of the action;

B. The notice of action was incomplete or inadequate; or

C. The action is determined to constitute an amendment to the local coastal program.

(Ord. C-6533 § 1 (part), 1988)

21.25.608 Effect of determination.

After the effective date, the determination to classify a particular use in a zone shall apply to all subsequent requests to establish that same use in that zone.

(Ord. C-6533 § 1 (part), 1988)

21.25.609 Record of determination.

The Department of Planning and Building shall maintain a current list of all uses classified in accordance with this Chapter, and the list shall be available to the public.

(Ord. C-6533 § 1 (part), 1988)

DIVISION VII.

PLANNED DEVELOPMENT DISTRICT AND SPECIFIC PLAN PROCEDURES*

21.25.701 Purpose.

The Planned Development (PD) District and Specific Plan (SP) procedures are established to allow flexible development plans to be prepared for certain areas of the City which may benefit from unique or special land use and design controls not otherwise possible under conventional zoning regulations. This Division establishes the procedures for securing the planned development district zone or specific plan zone designation, and for granting a planned development permit or specific plan permit for any project located in a PD or SP district.

(ORD-16-0009 § 2, 2016)

21.25.703 Planned Development or Specific Plan adoption.

A. A Planned Development District may only be established by an ordinance specifying, among other things, the goals, objectives, use and development standards for the PD. Such standards shall apply to all development within the PD.

B. A Specific Plan may only be established by an ordinance or resolution specifying, among other things, the goals, objectives, use and development standards for the SP. Such standards shall apply to all development within the SP.

(ORD-16-0009 § 2, 2016)

21.25.704 Establishment or amendment of Planned Development District or Specific Plan.

In addition to meeting all qualifying standards set forth in Chapter 21.37, and notwithstanding any other provisions of this Title 21, the following procedures shall apply to the establishment or amendment of any Planned Development District or Specific Plan area:

A. **Submission of a Detailed Development Plan.** The applicant shall submit a detailed development plan which indicates the use and development concepts within a proposed Planned Development District or Specific Plan zoning area.

***Editor's note**—ORD-16-0009 § 2, adopted June 14, 2016, amended Div. VII in its entirety to read as herein set out. Former Div. VII, §§ 21.25.701—21.25.708, was entitled "Planned Development District—Procedures", and derived from Ord. C-6533 § 1(part), 1988.

B. **Planning Commission Review.** The Planning Commission shall review and hold a public hearing on the establishment of or a proposed amendment to a Planned Development (PD) District zone or Specific Plan (SP) zone area. The application shall be heard as a rezoning matter pursuant to the requirements of Division I of this Title. The Planning Commission shall recommend action on the establishment or amendment to the City Council.

C. **City Council.** The City Council has the sole and final authority to act on the recommendation of the Planning Commission. If the council approves the Planned Development District or Specific Plan, or amendments thereto, the PD zone or SP area shall be indicated on the official zoning maps of the City by a PD or SP designation and a number indicating the Planned Development District or Specific Plan established. PD or SP numbers shall be assigned chronologically as indicated in Chapter 21.37 (Planned Development Districts and Specific Plans) of this Title.

(ORD-16-0009 § 2, 2016)

21.25.706 Availability of PD or Specific Plan ordinance or resolution.

Copies of adopted PD or SP ordinances or resolutions shall be available in the Department of Development Services for review or distribution to the public.

(ORD-16-0009 § 2, 2016)

21.25.708 Site plan review.

Notwithstanding any other provisions of this Title 21, all development within a PD zone or SP zoning area shall be reviewed pursuant to procedures specified in Division V of this Chapter.

(ORD-16-0009 § 2, 2016)

DIVISION VIII.

SPECIAL SETBACKS

21.25.801 Purpose.

Special setback lines may be established by ordinance as provided and regulated by this Title. These special setback lines supersede the setback requirements of the particular zoning district in which they are located. The purposes of establishing special setback lines are, among other things, to adjust zoning district requirements to conform to local conditions and existing neighborhood standards and to protect and preserve land for future right-of-way purposes.

(Ord. C-6533 § 1 (part), 1988)

21.25.802 Effect.

Whenever a special setback line is established in accord with these regulations, the setback area shall be considered a required yard area. The special setback line and setback area shall take the place of the otherwise applicable yard requirements for the zone district, except that when the regular setback of the district is greater than a special setback, the regular setback shall supersede the special setback and be controlling.

(Ord. C-6533 § 1 (part), 1988)

21.25.803 Initiation.

A. **Procedure.** Notwithstanding any other provision of this Title 21, the procedure to establish or change a special setback line may be initiated in one (1) of the following three (3) ways:

1. **City Council.** The City Council may initiate the procedure by requesting a recommendation and a report on the matter from the Planning Commission.

2. **Planning Commission.** The Planning Commission may initiate the procedure.

3. **Petition.** Property owners of at least fifty percent (50%) of the street frontage affected may initiate the procedure by filing a petition with the Department of Planning and Building.

B. **Limitations.** The minimum frontage that shall be considered in any action to establish or change a special setback line shall be one (1) block face.

(Ord. C-6533 § 1 (part), 1988)

21.25.804 Applicable procedures.

The procedures established in this Title for rezoning shall apply to establishing or changing a setback line.

(Ord. C-6533 § 1 (part), 1988)

21.25.805 Action required.

A. **Planning Commission.** After completing its investigation and holding the required public hearing, the Planning Commission shall file a recommendation and a report with the City Council. The Commission may recommend:

1. Approval in whole or in part;

2. Denial in whole or in part; or

3. Establishment of an alternate special setback line.

However, the Commission may not make recommendations on any property not included in the original action or petition.

B. **City Council.** Within sixty days of receiving the Planning Commission's recommendation, the City Council shall act on the recommendation. The Council shall establish or change a special setback line by ordinance.

C. **Notation.** Notation shall be made on the official zoning map in applicable areas that a special setback line has been established or changed.

(Ord. C-6533 § 1 (part), 1988)

21.25.806 Permitted structures.

Structures permitted in, over or under established special setback areas shall be the same as those allowed in the required yard area of the applicable zoning district. However, subterranean parking garages shall not be allowed under special setback areas, unless approved by the City Engineer.

(ORD-19-0028 § 6, 2019; Ord. C-6533 § 1 (part), 1988)

21.25.807 Variance.

Once a special setback line is established by ordinance, a variance to permit a structure to project into the special setback area may be granted in accordance with and subject to the findings of fact required for a variance as set forth in Division III of this Chapter. However, no variance shall be granted if the encroachment is within a setback established for the protection and preservation of rights-of-way.

(Ord. C-6533 § 1 (part), 1988)

21.25.808 Exception for fences.

A replacement fence within the special setback area shall not be considered a nonconformity and shall be permitted provided such fence is located in a side or rear yard and provided the fence height does not exceed six feet (6'), six inches (6").

(Ord. C-6533 § 1 (part), 1988)

DIVISION IX.

LOCAL COASTAL DEVELOPMENT PERMITS

21.25.901 Purpose.

Coastal development procedures are established to ensure that all public and private development in the Long Beach Coastal Zone is developed consistent with the City's certified local coastal program.

(Ord. C-6533 § 1 (part), 1988)

21.25.902 Applicability.

All properties in the coastal zone are subject to the procedures outlined in this Section. The coastal zone boundaries are indicated on the official zoning map.

(Ord. C-6533 § 1 (part), 1988)

21.25.903 Permit required.

All development in the coastal zone shall be required to obtain either a coastal permit pursuant to Section 21.25.904 or a coastal permit categorical exclusion pursuant to Section 21.25.906. Such approval must be issued prior to the start of development and shall be required in addition to any other permits or approvals required by the City.

A. Coastal Permit Issued by the Coastal Commission. Developments on tidelands and submerged lands require a permit issued by the California Coastal Commission in accordance with the procedure as specified by the California Coastal Commission.

B. Coastal Permits Issued by the City. The following categories of projects requires coastal permits in accordance with the procedures set forth in this Division:

1. Development on the first lot located on, adjacent to, across the street from, or abutting the beach, bay, ocean or tidelands, except minor additions to a single-family residence as specified in Subsection 21.25.901.C (categorical exclusion).

2. All development projects which require additional discretionary review (such as a conditional use permit, subdivision map or standards variance).

3. Traffic improvements which do not qualify for categorical exclusion.

4. Public works projects, excluding traffic improvement projects, with an estimated cost of fifty thousand dollars ($50,000.00) or more.

5. Any extension of an existing facility into tidelands, environmentally sensitive areas, coastal waterways, public parkland, or within fifty (50) feet of a coastal bluff edge.

6. Any application for the restriction of short-term rentals pursuant to the provisions and procedures outlined in Chapter 5.77 (Short-Term Rentals) in the certified LCP.

7. Any application for the legalization of unpermitted dwelling units pursuant to the provisions and procedures outlined in Chapter 21.66 (Unpermitted Dwelling Unit Amnesty Program).

8. Any application for the conversion of an existing transient residential structure into an interim supportive or transitional housing use pursuant to the provisions and procedures outlined in Chapter 21.65 (Interim Motel/Hotel Conversions) in the certified Local Coastal Program.

C. Exemptions. The following categories of projects are exempt from the coastal permit requirement. However, a coastal permit categorical exclusion (CPCE) shall be obtained pursuant to the procedures indicated in Section 21.25.906.

1. Minor additions on existing single-family residences for the first lot located on, adjacent to, across the street from, or abutting the beach, bay ocean or tidelands. Such additions must be less than ten percent (10%) of the existing floor area and shall not create an additional story or loft.

2. All projects (excluding the above) which are consistent with the Zoning Regulations, Local Coastal Program, applicable water quality standards, best management practices and pollution controls, and which do not require any discretionary review (e.g., conditional use permit, subdivision map).

3. Traffic improvements which do not:

a. Alter roadway or intersection capacity by more than ten percent (10%) (except stop signs and stop lights); or

b. Decrease parking (except by establishing a red curb next to a corner); or

c. Impair access to the coast.

4. Public works projects (excluding traffic improvements) with an estimated cost of forty-nine thousand nine hundred ninety-nine dollars ($49,999.00) or less.

(ORD-23-0025 § 1, 2023 ORD-22-0012 § 2, 2022; ORD-20-0025 § 1, 2020; ORD-19-0008 § 1, 2019; ORD-17-0031 § 17, 2017; Ord. C-6533 § 1 (part), 1988)

21.25.904 Procedures—Coastal permit.

This Section outlines the procedures for issuing coastal permits. Coastal permits may be considered concurrently with or subsequent to any other procedures required by this Title or the City's subdivision regulations.

A. Jurisdiction.

1. Planning Commission. The Planning Commission shall consider all local coastal development permits for developments requiring a tract map, a parcel map, conditional use permit or planned development permit.

2. Coastal Commission. The Coastal Commission shall consider all coastal permits for projects located below the mean high tide.

3. Zoning Administrator. The Zoning Administrator shall consider all other local coastal development permits.

B. Hearing Required. A public hearing shall be required prior to the approval of a local coastal development permit except for local coastal development permits for the legalization of unpermitted dwelling unit(s) in conformance with the requirements of certified Zoning Code Chapter 21.66 (Unpermitted Dwelling Unit Amnesty Program).

C. Findings Required. Prior to approving a local coastal development permit, the responsible hearing body must find:

1. The proposed development conforms to the certified local coastal program, including but not limited to all requirements for replacement of low- and moderate-income housing; and

2. The proposed development conforms to the public access and recreation policies of Chapter 3 of the Coastal Act. This second finding applies only to development located seaward of the nearest public highway to the shoreline.

3. For an application for a religious assembly use, if an exception or waiver of LCP requirements is sought under Section 21.52.219.8.G, that the exception or waiver allows the minimum deviation from LCP requirements necessary to comply with RLUIPA, and that the

decisionmaker has imposed all conditions necessary to comply with all provisions of the LCP, with the exception of the provision(s) for which implementation would violate RLUIPA.

4. The proposed development is sited, designed and managed to minimize the transport of pollutants by runoff into coastal waters and groundwater, and to minimize increases in runoff volume and velocity from the site which may adversely impact coastal resources or coastal bluff stability. Best Management Practices shall be implemented, as applicable, including but not limited to applicable local, regional, state and federal water quality permits, standards and guidance provided in the LCP, best practices and other measures as may be recommended by the City Engineer.

5. For an application to restrict short-term rentals in accordance with the provisions and procedures outlined in Chapter 5.77 (Short-Term Rentals) of the certified LCP, the project shall conform with the certified local coastal program, including with the provisions relating to coastal access and recreation. The required findings must include a cumulative impacts analysis informed, at least in part, by monitoring data collected on approved projects that restrict STRs and on STRs throughout the coastal zone. The responsible hearing body shall also find:

   (i) The proposed restriction would not result in the substantial loss of visitor-serving accommodations (i.e., a reduction in available overnight accommodation rooms, including but not limited to short-term rentals, hotels, and/or motels, within 1/4 mile of visitor-serving recreational uses, the beach, bay, ocean, or tidelands).

   (ii) The proposed restriction would not result in the loss of lower-cost overnight accommodations. Lower-cost overnight accommodations shall be defined as those charging approximately twenty five percent (25%) less than the statewide average daily room rate or less.

   (iii) The proposed restriction would not result in the net loss of short-term rentals below four hundred twenty-five (425) short-term rental units (both hosted and un-hosted and/or primary or non-primary) historically occurring in the coastal zone.

   (iv) The proposed restriction would be necessary to protect the neighborhood stability, housing access, and would be consistent with the neighborhood character established in the Local Coastal Program (LCP).

6. For an application to legalize an unpermitted dwelling unit in accordance with the provisions and procedures outlined in Chapter 21.66 (Unpermitted Dwelling Unit Amnesty Program) of the certified Zoning Code, the project shall conform with the certified local coastal program, including habitat protection policies and coastal hazards policies. For dwelling units subject to coastal hazards, the Applicant shall be required to assume the risk of development in a hazardous area.

7. For an application to convert an existing transient residential structure (i.e., Motel/Hotel) into an interim supportive or transitional housing use in accordance with the provisions and

procedures outlined in Chapter 21.65 (Interim Motel/Hotel Conversions) of the certified Zoning Code, the project shall conform with the certified Local Coastal Program, including policies related to the protection of existing lower cost overnight visitor-serving accommodations. Potential impact(s) to visitor-serving accommodations resulting from the temporary conversion shall be avoided or minimized through strategies that include, but are not limited to:

(i) Reserving a portion of the rooms in the hotel/motel for hotel use at the defined "low cost" rate

(ii) Limiting the use of the hotel/motel for interim supportive or transitional housing to the winter months, and/or

(iii) Limiting the term of the coastal development permit. The required findings must include an analysis of historic occupancy rates and the current room rates of the rooms proposed to be converted as compared to the annual statewide average room rate. "Low cost" visitor-serving accommodation rates shall be defined as rates equal to or less than the annual statewide average room rate minus 25%. "Moderate cost" visitor-serving accommodation rates shall be defined as rates between 75% to 125% of the annual statewide average room rate. Findings shall consider the need to maintain and protect existing levels of visitor-serving overnight accommodations, maintaining adequate public coastal access for visitors to the area, and environmental justice. If there will be a loss of existing low or moderate-cost visitor-serving overnight accommodations for a period of one year or more (excluding temporary conversion of low or moderate cost rooms for interim supportive or transitional housing during winter months only) then appropriate mitigation shall include, but not be limited to the following measures:

(i) Construction of equivalent replacement motel/hotel rooms or other low or moderate cost visitor-serving accommodations at a 1 to 1 ratio; and/or

(ii) If it is determined to be infeasible to provide replacement rooms on or near the project site within the coastal zone as described in the previous subsection, payment of in-lieu fees adequate to provide full replacement of low or moderate cost overnight visitor-serving accommodations.

D. Date of Final Location Action. The date of final action is:

1. The date when the appeal period on all local actions has expired without local appeal;

2. The date of action on the local appeal(s); or

3. The date the City is notified by the applicant that the application is approved by operation of law pursuant to Sections 65950 through 65957.1 of the Government Code.

E. Notice of Final Action. Within seven (7) calendar days of the date of the final local action on a local coastal development permit, a notice shall be sent to the Coastal Commission and to any persons who specifically request such notice by submitting a self-addressed, stamped envelope.

The notice shall include the written findings of fact required to approve the local coastal development permit and the conditions imposed on the approval, if the permit is approved. Any notice of final local action shall include the procedures for appeal of the action to the Coastal Commission and an indication as to whether the development is in an appealable area.

F. Appeals to Coastal Commission. All actions on local coastal development permits located seaward of the appealable area boundary, as determined under Section 21.25.908, may be appealed by an aggrieved person to the Coastal Commission according to the procedures of the Coastal Commission, provided that:

1. All local appeals of City actions provided for by this Title have been exhausted and no fee was charged the appellant for the appeal; and

2. The Coastal Commission has not appealed the local action.

G. Effective Date. A local coastal development permit shall be effective as follows:

1. Outside Appealable Area. On date of final action;

2. Within Appealable Area. At conclusion of the twenty-first day after final local action, unless:

a. Appeal. If a permit is appealed, it shall become effective after action on the appeal by the Coastal Commission.

b. Failure to Go Notice. If notice to the Coastal Commission is not mailed by the City within seven (7) days after final local action, then the permit shall become effective at the conclusion of the fourteenth day after a complete notice is mailed but no sooner than at the conclusion of the twenty-first day after final local action.

c. Inadequate Filing. If the Coastal Commission notifies the City and the applicant that notice was not received or distributed in a timely manner or that the notice was not complete or does not adequately describe the development, then the permit becomes effective at the conclusion of the fourteenth day after receipt of such a notice from the Coastal Commission or on the date specified by the Coastal Commission.

(ORD-23-0025 § 2, 2023 ORD-22-0012 § 3, 2022; ORD-20-0025 § 2, 2020; ORD-19-0008 § 2, 2019; Ord. C-6533 § 1 (part), 1988)

21.25.905 Administrative Land Use Review.

This Section establishes procedures for conducting review of by-right land uses and structures to verify that any new or expanded use or structure complies with all of the applicable requirements of this Code.

A. Applicability. Administrative Land Use Review is required for new or substantial expansions of uses of land or a building, which are: 1) allowed by-right but require compliance with Special

Development Standards detailed in Chapters 21.45, 21.51, or 21.52 of this Code; and/or 2) allowed by an existing approved planning application (Site Plan Review, Conditional Use Permit, etc.).

B. Application. Applications and fees for Administrative Land Use Review shall be submitted in accordance with the provisions set forth in Chapter 21.21.201, Application. The Zoning Administrator may request that the Administrative Land Use Review application be accompanied by a written narrative, plans and other related materials necessary to show that the proposed development, alteration, or use of the site complies with all provisions of this Code and the requirements and conditions of any applicable planning application approval.

C. Determination. If the Zoning Administrator determines that the proposed use or building conforms to all the applicable development and use standards, the Director shall issue written notice of the Administrative Land Use Review determination within 30 days of the date of receipt of a completed application. An approved Administrative Land Use Review may include attachments of other written or graphic information, including but not limited to, statements, numeric data, site plans, floor plans and building elevations and sections, as a record of the proposal's conformity with the applicable regulations of this Code.

D. Exceptions. Administrative Land Use Review is not required for the continuation of previously approved or permitted uses and structures, or uses and structures that are not subject to any building or development code regulations.

E. Appeals. Administrative Land Use Review decisions are subject to the appeal provisions of Chapter 21.21, Appeals.

(ORD-18-0025 § 14, 2018)

21.25.906 Procedures—Categorical exclusion.

This Section outlines the procedures for processing developments exempt from local coastal permit requirements.

A. **Jurisdiction.** The Zoning Administrator, or his designee, shall determine whether a proposed development is exempt, as provided for in Subsection 21.25.903.C of this Chapter.

B. **Means of Determination.** Determination that a proposed development is exempt shall be made by checking the proposed development with the certified local coastal program, including all maps, land use designations, implementing zoning regulations and guidelines for exemption.

C. **No Hearing Required.** No public hearing or notice shall be required for a project determined to be exempt.

D. **Appeal of Determination.** Any person may appeal the Zoning Administrator's determination by requesting a referral of the matter to the Executive Director of the Coastal Commission. If the

determination of the Executive Director of the Coastal Commission differs from that of the Zoning Administrator, then the matter shall be resolved by a hearing before the Coastal Commission.

E. **Effective Date.** A decision that a development is exempt shall be effective when such a decision is made by the Zoning Administrator, or his designee, unless the decision is appealed.

F. **Records Required.** A public record, including the applicant's name, the location and brief description of the development shall be kept for all developments determined to be exempt.

(Ord. C-6533 § 1 (part), 1988)

21.25.908 Appealable area.

Only local actions on projects located within the appealable area may be appealed to the Coastal Commission. The determination of whether a project lies seaward of the appealable area boundary shall be made as follows:

A. **Jurisdiction.** Determination that a proposed development is seaward of the appealable area boundary shall be made by the Zoning Administrator or his designee.

B. **Means of Determination.** Determination shall be made by locating the development on the appealable area boundary map certified as part of the local coastal program.

C. **Appeal of Determination.** Any person may appeal the Zoning Administrator's determination by requesting a referral of the matter to the Executive Director of the Coastal Commission. If the determination of the Executive Director of the Coastal Commission differs from that of the Zoning Administrator, then the matter shall be resolved by a hearing before the Coastal Commission.

(Ord. C-6533 § 1 (part), 1988)

DIVISION X.

(REPEALED)

DIVISION XI.

DETERMINATION OF APPLICABLE LAW

21.25.1101 Purpose.

The City recognizes that gaining local and public approvals for the development of land can be time-consuming and that, during the process and prior to project completion, applicable local law, including local zoning regulations, may change. Such changes may place applicants in the approval "pipeline" at considerable economic risk. In order to reasonably reduce that risk, while maintaining appropriate opportunities for local agency review and full public input and participation, the process

set forth in this Division is established for the purpose of assuring applicants of the continued applicability of certain local laws and regulations, under the terms and conditions set forth in this Division.

(Ord. C-6546 § 2 (part), 1988)

21.25.1103 Application.

A. Notwithstanding any provision of Section 21.21.201, the right to apply for a determination of applicable law pursuant to this Division XI shall be limited to affected property owners or their agents designated in writing at the time of application.

B. The application for a determination pursuant to this Division XI shall include a complete description of the project for which a determination is being sought and shall also set forth an

itemization of all permits and other grants of entitlement required by law for such project and an indication that such permits and grants have either been granted or that they are being applied for as a part of the application for determination.

C. No application shall be deemed complete pursuant to this Section until it has been accepted as complete by the Department of Planning and Building, which Department may require such additional or supplemental information as it considers to be reasonably necessary to enable further processing and full understanding of the application.

(Ord. C-6546 § 2 (part), 1988)

21.25.1105 Timely action.

Within sixty (60) days of acceptance of an application for determination as complete under this Division XI, the Zoning Administrator shall set the application for public hearing before the Planning Commission.

(Ord. C-6546 § 2 (part), 1988)

21.25.1108 Jurisdiction.

The Planning Commission shall consider all applications for a determination pursuant to this Division XI, and the decision of the Planning Commission shall be final unless the decision is appealed to the City Council in accordance with the provisions of Division V of Chapter 21.21.

(Ord. C-6546 § 2 (part), 1988)

21.25.1110 Determination of applicable law.

A. The Planning Commission shall consider any application for a determination of applicable law pursuant to the provisions of this Division XI, and may grant such determination if the application meets all requirements of law including, but not limited to all requirements of this Division XI.

B. The effect of the granting of a determination pursuant to this Division XI will be to empower an applicant to complete a project, insofar as it is described and permitted under the application, pursuant to the provisions of local law as they existed at the time that a determination granted hereunder becomes final.

C. No determination granted hereunder shall operate to obviate or make inapplicable any change in local law following the grant of the determination if:

1. The change in law is outside the scope of the project described and permitted in the application and determination; or

2. The change in law affects a permit or entitlement that was not described and included, through inadvertence, mistake, or otherwise, in the application and determination; or

3. It fails, in any way or for any reason, to comply with all requirements of this Division XI or any other provision of law in effect at the time of final grant of determination.

(Ord. C-6546 § 2 (part), 1988)

21.25.1113 Findings required.

The Planning Commission, and the City Council on appeal, may grant a determination of applicable law pursuant to this Division XI if, and only if, it first makes, after public hearing, each of the following findings:

A. The project has been or is approved for site plan review pursuant to Division V of this Chapter 21.25; and

B. The project complies with all applicable provisions of law, including, but not limited to, all applicable zoning regulations; and

C. The project has complied, or will comply, with all applicable environmental requirements including those relating to proceedings conducted pursuant to this Division XI;

D. The project is consistent with the provisions of the zoning district in which it is proposed to be located; and

E. The project is consistent with the General Plan of the City of Long Beach; and

F. No amendments to the General Plan, the zoning regulations or the applicable zoning district have been initiated at the time of or prior to the grant of determination which would affect the use, design or lawfulness of the project.

(Ord. C-6546 § 2 (part), 1988)

21.25.1115 Effectiveness and expiration.

A. A determination of applicable law shall be effective for one hundred eighty (180) days following the date upon which the granting of the determination becomes final. Thereafter, the determination shall cease to be of any further force and effect, and the project shall be subject to all applicable local laws as they then or thereafter exist, unless:

1. Complete drawings and fees are submitted for plan check within the one hundred eighty (180) day period. In such case, the determination shall continue to be effective through the plan check period but in no event longer than one (1) year from the date of submittal to plan check. If a building permit is not issued within one (1) year of submittal to plan check, the determination shall expire. If a building permit is issued within the year, then the determination shall continue for the period during which the building permit is valid and lawfully in full force and effect. To remain valid, construction under the building permit must begin and be completed through the passage of the first inspection within six (6) months of issuance of the building permit. For purpose of this

Subsection 21.25.1115.A.1, a foundation permit shall be treated as equivalent to a building permit but grading, demolition, electrical, mechanical or plumbing permits shall not be considered or treated as building permits; or

2. A time extension request is filed, together with all required fees, prior to the expiration of the one hundred eighty (180) day period. Such an extension shall be heard by the Planning Commission or, on appeal, the City Council and shall be noticed in the same manner as the original hearing. At such extension hearing, the Planning Commission, or on appeal, the City Council may approve the extension if they find the applicant has made a good-faith effort to complete drawings for plan check but was unable to do so because of the size or complexity of the project. Sale or transfer of title of a project shall not be grounds for an extension. No extension shall be granted that will allow the determination to continue more than one (1) year from the date of its first being granted without submittal of the project to plan check.

(Ord. C-6546 § 2 (part), 1988)

DIVISION XII.

INTERIM PARK USE PERMIT

21.25.1201 Purpose.

The City recognizes that vacant lots, due to their nature, have the potential to create an impression of blight and decay in a neighborhood. In addition to the negative visual impact, vacant lots are a potential source for nuisances (such as trash, debris, and rodents). Thus, as a means of unifying neighborhoods for the purpose of eliminating unsightly vacant lots and enhancing their neighborhood's visual and physical surroundings, community groups may opt to replace them with interim neighborhood serving parks.

(Ord. C-7378 § 26, 1995)

21.25.1203 Application.

Notwithstanding the provisions of Section 21.21.201 (Application), the right to apply for an interim park use permit shall be limited to affected property owners or their agents. Applications for interim park use permits may be submitted only for playground uses as indicated in the applicable zone district use table. If the proposed project does not comply with an applicable development standards, a separate standards variance application shall also be required.

(Ord. C-7378 § 26, 1995)

21.25.1205 Jurisdiction.

The City Council shall consider all applications for an interim park use permit. The decision of the City Council shall be final.

(Ord. C-7378 § 26, 1995)

21.25.1207 Required findings.

The following findings must be analyzed, made and adopted before any action is taken to approve or deny the subject permit and must be incorporated into the record of the proceedings relating to such approval or denial:

A. The proposed use is compatible with the surrounding neighborhood;

B. The proposed use will not be detrimental to the surrounding community including public health, safety or general welfare, environmental quality or quality of life; and

C. The approval is in compliance with the special conditions of approval established for playgrounds as listed in Chapter 21.52.

(Ord. C-7378 § 26, 1995)

21.25.1209 Timely action.

The City Clerk shall set the matter for public hearing before the City Council within sixty (60) days of receiving a completed application.

(Ord. C-7378 § 26, 1995)

21.25.1211 Waiver of required conditions.

Conditions required by Division II of Chapter 21.52 may be waived but only if the waiver of those conditions will not conflict with required findings, provided that conditions necessary for the protection of public health, safety and welfare may not be waived under any circumstances.

(Ord. C-7378 § 26, 1995)

21.25.1213 Posting of conditions.

All conditions pertaining to the operation of the use shall be permanently posted, on a form provided by the Director of Planning and Building, at a location clearly visible to the public utilizing the facility.

(Ord. C-7378 § 26, 1995)

21.25.1215 Annual reinspection.

All projects for which an interim park use permit was approved shall be required to undergo an annual reinspection to verify compliance with the conditions of approval. The property owner shall be required to pay an annual fee to the City as established by the City Council to cover the costs of the reinspection program.

(Ord. C-7378 § 26, 1995)

DIVISION XIII.

REASONABLE ACCOMMODATION

21.25.1301 Purpose.

It is the policy of the City, pursuant to the Federal Fair Housing Amendments Act of 1988, to provide people with disabilities reasonable accommodation in rules, policies, practices and procedures that may

be necessary to ensure equal access to housing. The purpose of this Division is to provide a process for individuals with disabilities to make requests for reasonable accommodation in regard to relief from the various land use, zoning, or building laws, rules, policies, practices and/or procedures of the City.

(Ord. C-7639 § 1, 1999)

21.25.1303 Definitions.

A. **Act.** The Fair Housing Amendments Act of 1988.

B. **Applicant.** An individual making a request for reasonable accommodation pursuant to this Division.

C. **Code.** The Long Beach Municipal Code.

D. **Department.** The Department of Planning and Building of the City of Long Beach.

E. **Disabled Person.** Any person who has a physical or mental impairment that substantially limits one (1) or more major life activities; anyone who is regarded as having such impairment; or anyone who has a record of such impairment. People who are currently using illegal substances are not covered under the Act or this Division unless they have a separate disability.

F. **Group Home.** Refers to any and all facilities which are regulated by the provisions of the California Community Care Facilities Act (Health and Safety Code Section 1500 et seq.), the California Residential Care Facilities for the Elderly Act (Health and Safety Code Section 1569) or any alcoholism or drug abuse recovery or treatment facility as defined by Health and Safety Code Section 11834.02 or any successor statutes.

G. **Increased Occupancy.** Refers to a request to increase the number of individuals permitted or licensed by State or local law to occupy a group home.

(Ord. C-7639 § 1, 1999)

21.25.1305 Notice to the public of availability of accommodation process.

The Department of Planning and Building shall prominently display in both the Development Services Center and the Planning Bureau a notice advising those with disabilities or their representatives that they may request a reasonable accommodation hearing in accordance with the procedures established in this Division.

(Ord. C-7639 § 1, 1999)

21.25.1307 Requesting reasonable accommodation.

A. In order to make specific housing available to an individual with a disability, a disabled person or representative may request reasonable accommodation relating to the various land use, zoning, or building laws, rules, policies, practices and/or procedures of the City.

B. If an individual needs assistance in making the request for reasonable accommodation, or appealing a determination regarding reasonable accommodation, the Department will endeavor to provide the assistance necessary to ensure that the process is accessible to the applicant or representative. The applicant shall be entitled to be represented at all stages of the proceeding by a person designated by the applicant.

C. A request for reasonable accommodation in laws, rules, policies, practices and/or procedures may be filed on an application form provided by the Department at any time that the accommodation may be necessary to ensure equal access to housing.

(Ord. C-7639 § 1, 1999)

21.25.1309 Jurisdiction.

A. **Zoning Officer/Building Official.** The Zoning Officer, or Building Official, as appropriate, shall have the authority to consider and act on requests for reasonable accommodation. When a request for reasonable accommodation is filed with the Department, it will be referred to the Zoning Officer or Building Official for review and consideration. The Zoning Officer or Building Official shall issue a written determination within thirty (30) days of the date of receipt of a completed application and may: (1) grant the accommodation request, (2) grant the accommodation request subject to specified nondiscriminatory conditions, or (3) deny the request. All written determinations shall give notice of the right to appeal and the right to request reasonable accommodation on the appeals process, if necessary. The notice of determination shall be sent to the applicant by certified mail, return receipt requested.

B. If necessary to reach a determination on the request for reasonable accommodation, the Zoning Officer or Building Official may request further information from the applicant consistent with this Division, specifying in detail what information is required. In the event a request for further information is made, the thirty (30) day period to issue a written determination shall be stayed until the applicant responds to the request.

(Ord. C-7639 § 1, 1999)

21.25.1311 Required findings.

The following findings must be analyzed, made and adopted before any action is taken to approve or deny a request for reasonable accommodation and must be incorporated into the record of the proceeding relating to such approval or denial:

A. The housing, which is the subject of the request for reasonable accommodation, will be used by an individual protected under the Act.

B. The request for reasonable accommodation is necessary to make specific housing available to an individual protected under the Act.

C. The requested reasonable accommodation will not impose an undue financial or administrative burden on the City.

D. The requested accommodation will not require a fundamental alteration of the zoning or building laws, policies and/or procedures of the City.

E. For housing located in the coastal zone, a request for reasonable accommodation under this Section shall be approved by the City if it is consistent with Subsections 21.25.1311.A through 21.25.1311.D above, and the certified Local Coastal Program. Where a request for reasonable accommodation is not consistent with the certified Local Coastal Program, the City may waive compliance with an otherwise applicable provision of the Local Coastal Program and approve the request for reasonable accommodation if the City finds:

1. The requested reasonable accommodation is consistent, to the maximum extent feasible, with the certified Local Coastal Program; and

2. There are no feasible alternative means for providing an accommodation at the property that would provide greater consistency with the certified Local Coastal Program.

(Ord. C-7726 § 2, 2001; Ord. C-7639 § 1, 1999)

21.25.1313 Appeals.

A. Within thirty (30) days of the date the Zoning Officer or Building Official issues a written determination, the applicant requesting the accommodation may appeal an adverse determination or any conditions or limitations imposed in the written determination.

B. All appeals shall contain a statement of the grounds for the appeal.

C. Appeals shall be to the Planning Commission who shall hear the matter and render a determination as soon as reasonably practicable, but in no event later than sixty (60) days after an appeal has been filed. All determinations on appeal shall address and be based upon the same findings required to be made in the original determination from which the appeal is taken.

D. An applicant may request reasonable accommodation in the procedure by which an appeal will be conducted.

(Ord. C-7639 § 1, 1999)

21.25.1315 Reasonable accommodation relating to requests for increased occupancy of group homes.

A. All requests for reasonable accommodation relating to increased occupancy of a group home shall be filed first with the City's Zoning Officer.

B. The Zoning Officer may hold a hearing on a request for reasonable accommodation relating to the increased occupancy of a group home, or may instead, at his/her sole discretion, refer the application to the Planning Commission for hearing. If the Zoning Officer acts on a request for reasonable accommodation pursuant to this Section, the Zoning Officer shall hear the matter and issue a written determination within thirty (30) days of the date of receipt of a completed application. If the Planning Commission acts on a request for reasonable accommodation

pursuant to this Section, the Planning Commission shall hear the matter and render a determination as soon as reasonably practicable, but in no event later than sixty (60) days of receipt of a completed application.

C. Notice of hearing pursuant to this Section shall be provided not less than fourteen (14) days prior to the hearing and shall be mailed or delivered to all owners of real property as shown on the latest equalized assessment roll within three hundred feet (300') of the real property that is the subject of the hearing. In all cases under this Section, the applicant shall bear the cost of the radius mailing.

D. The Zoning Officer or Planning Commission acting pursuant to this Section, shall: (1) grant the accommodation request, (2) grant the accommodation request subject to specified nondiscriminatory conditions, including, but not limited to, a condition requiring the applicant to show proof of any required State license for the activity or occupancy contemplated, or (3) deny the request.

E. The Zoning Officer or Planning Commission, as appropriate, shall explain, in writing, the basis of the determination including the Zoning Officer's or Planning Commissioner's findings on the criteria set forth in Section 21.25.1311. All written determinations shall give notice of the right to appeal and the right to request reasonable accommodation on the appeals process, if necessary. The notice of the determination shall be sent to the applicant by certified mail, return receipt requested.

F. Within thirty (30) days of the issuance of a written determination on the hearing conducted pursuant to this Section, any aggrieved party within the meaning of this Code, may file an appeal from the determination of the Zoning Officer or Planning Commission. Appeals from a determination of the Zoning Officer shall be to the Planning Commission, appeals from a determination of the Planning Commission shall be to the City Council. All appeals shall contain a statement of the grounds for the appeal.

G. Appeals to the Planning Commission or City Council pursuant to this Section shall be heard as soon as reasonably practicable, but in no event later than sixty (60) days after an appeal has been filed. All determinations on appeal shall address and be based upon the same findings required to be made in the original determination from which the appeal is taken.

(Ord. C-7639 § 1, 1999)

21.25.1317 Fee.

There shall be no fee imposed in connection with a request for reasonable accommodation under the provisions of this Division, except that a fee equivalent to the fee imposed for an administrative use permit shall be required if the application for reasonable accommodation relates to an increase in the occupancy of a group home.

(Ord. C-7639 § 1, 1999)

CHAPTER 21.27 NONCONFORMITIES*

21.27.010 Purpose.

The City recognizes that the eventual elimination of existing nonconforming uses and structures benefits the health, safety and welfare of the community. It is the intent of this Chapter to establish

*Note—1. Prior ordinance history: Ord. C 6533, 1988; Ord. C 6595, 1989; Ord. C 6684, 1990; Ord. C 6822, 1990; Ord. C 6933, 1991; Ord. C 7032, 1992; Ord. C 7047, 1992; Ord. C 7064, 1992; Ord. C 7247, 1994; Ord. C 7274, 1994; Ord. C 7399, 1996; Ord. C 7500, 1997; Ord. C 7550, 1998.

regulations and procedures which ensure that the elimination of nonconforming uses and structures occurs as expeditiously and as fairly as possible and also avoids any unreasonable invasion of established property rights.

(Ord. C-7663 § 5, 1999)

21.27.020 Continuance of nonconforming rights.

Nonconformities, as defined in Chapter 21.15 of this Title, may continue to be used and maintained in accordance with the provisions of this Chapter. The use and maintenance is permitted as a result of vested rights obtained through the legal establishment of the nonconforming use or structure so long as the use is operated and maintained in such a manner as not to be a nuisance, a blighting influence or a direct and substantial detriment to the rights of adjoining, abutting or adjacent uses.

(Ord. C-7663 § 5, 1999)

21.27.030 Illegal uses or structures.

Illegal uses or structures have no vested rights. Illegal uses and structures shall either be brought into legal conforming status or shall be removed.

(Ord. C-7663 § 5, 1999)

21.27.040 Maintenance.

Ordinary maintenance and repair of a building containing a nonconforming use, such as painting, plumbing repair, shall be permitted as necessary to ensure the protection of general health, safety and welfare. All nonconforming uses and structures are subject to all applicable property maintenance and substandard buildings laws.

(Ord. C-7663 § 5, 1999)

21.27.050 Abandonment.

A. **Loss of rights to a nonconforming use.** All rights to a nonconforming use are lost if the use is abandoned for twelve (12) months (see Section 21.15.030) or if the structure housing the use is demolished (see Section 21.15.750) except as follows:

1. **Nonconforming nonresidential structure.** A nonconforming nonresidential structure, which has been abandoned for a period greater than twelve (12) months, may apply for an administrative use permit to establish a CNP (neighborhood pedestrian) permitted use and may apply for a conditional use permit to establish a CNP (neighborhood pedestrian) discretionally permitted use.

2. **Nonconforming nonresidential historic landmark.** A designated City landmark which has been abandoned for a period greater than twelve (12) months, may apply for an administrative use

permit to establish a CNP (neighborhood pedestrian) permitted use or discretionally permitted use, and may apply for a conditional use permit to establish another nonconforming use subject to the following:

a. A special building inspection is conducted to ensure the building conforms or can be repaired to conform to minimum building, plumbing, fire, housing, electrical and earthquake code provisions as necessary to protect public health and safety, and

b. The proposed use is necessary to avoid an unnecessary hardship on the property owner due to the condition of the structure, the value of the property, or the potential economic life of the building, and

c. The proposed change of use will provide a desirable service or will be beneficial to the neighborhood, and

d. The proposed use and adaptive reuse design plan has obtained a certificate of appropriateness from the Cultural Heritage Commission.

B. **Loss of rights to nonconforming parking.** All nonconforming rights related to parking shall be lost if the principal building (housing the principal use) on the lot is demolished, except that:

1. Rights shall not be lost if a building is merely vacated.

2. If a building for a residential use of four or fewer principal dwelling units is demolished, but a nonconforming garage accessory to that use is not demolished, the nonconforming garage may remain and the permitted number of parking spaces in that garage shall be counted toward the parking requirement for new construction. However, any new construction shall comply with all applicable development standards, and the presence of the nonconforming garage shall not constitute a reason for relief or waiver of those development standards.

3. If a building for a residential use of five or more principal dwelling units or any non-residential principal building is demolished, any remaining nonconforming garage, also shall lose its nonconforming rights and shall be brought into conformance with the requirements of the Zoning Regulations.

4. For a site or use with no building area (GFA), abandonment of the use also shall constitute abandonment of any nonconforming parking rights.

C. **Abandonment/revocation of rights through nuisance, blight or detrimental effect upon adjoining, abutting or adjacent property.** Any nonconforming use which is operated in such a way as to be a nuisance or a direct detriment to adjoining, abutting or adjacent properties or which is neglected to the point of being a blight on the community shall be considered to have had its nonconforming rights abandoned. Such abandonment shall be determined by a revocation hearing according to the procedures of Division VI, "Revocations", of Chapter 21.21 of this Title, provided, that:

1. A fully noticed public hearing is held before the Planning Commission; and

2. The Planning Commission, or City Council on appeal, finds that:

   a. The use adversely affects the health, peace or safety of persons residing or working on the premises or in the surrounding area, or

   b. The use jeopardizes or endangers the public health or safety, or

   c. The use constitutes a direct and substantial detriment to surrounding uses by repeated adverse activities and incidences, including, but not limited to, disturbances of the peace, illegal drug activity, public drunkenness, drinking in public, harassment of passerby, gambling, prostitution, sale of stolen goods, public urination, theft, assault, battery, acts of vandalism, loitering, excessive littering, illegal parking, loud noises (particularly in late night or early morning), noise code violations, traffic violations, curfew violations, lewd conduct or police detentions and arrests, or

   d. The uses cause repeated violations under Public Health and Safety Code, Title 8 or Title 9, and

   e. The owner or operator has been unwilling or unable to eliminate the adverse activities, if any;

3. If it finds that conditions and/or modifications of the use will be ineffective in eliminating the adverse activities, the Planning Commission, or City Council on appeal, shall revoke only the nonconforming rights to the use;

4. Continuation of any use after abandonment or revocation pursuant to this Subsection shall constitute a violation of this Chapter and shall be penalized as provided for in Section 21.10.080.

(ORD-24-0033 § 14, 2024; Ord. C-7663 § 5, 1999)

21.27.055 Modification.

If a nonconforming structure is demolished and/or rebuilt, as defined in Sections 21.15.750 and 21.15.2250 of this Title, the structure must be brought into conformity with the provisions of the Zoning Code and certified Local Coastal Program, as appropriate.

(ORD-19-0007 § 7, 2019)

21.27.060 Expansion.

A nonconforming use or structure shall not be expanded or altered in any way so as to increase that nonconformity, except as follows:

A. **Uses permitted by CUP or AUP.** Any use which was originally established in a zone district by right and has since been reclassified as a discretionary use in that district shall obtain an administrative use permit or a conditional use permit, as designated in the applicable use table, prior to expansion of the use or any building or structure related to the use. An application to change an alcoholic beverage license to expand the range of beverages sold shall be considered an expansion of that use.

B. **Conforming nonresidential uses with nonconforming parking.** A conforming nonresidential use with nonconforming parking may be expanded or intensified, if parking is provided for the expansion or intensification in accordance with current parking standards of the Zoning Regulations. The required number of parking spaces shall be calculated based on the additional square feet of new construction or intensified area of land use or other applicable unit of measurement. A conforming nonresidential use that has nonconforming parking also may apply for an Administrative Use Permit (AUP) to obtain relief from parking requirements in accordance with Section 21.41.223.

C. **Nonconforming residential uses.**

1. **Maximum expansion.** A nonconforming residential use (i.e., that exceeds the allowable density for the zone, or is located in a zone that does not permit the residential use) shall not be expanded by more than two hundred fifty (250) square feet per unit after July 1, 1989. Expansion rights shall not be transferred from one unit to another.

2. **Parking.** Any expansion beyond the first two hundred fifty (250) square feet of cumulative addition to the site shall require one (1) additional conforming parking space for each additional two hundred fifty (250) square feet or portion thereof added to the site, provided that no unit shall be expanded by more than 250 square feet per Subsection 21.27.060.C.1. For a lot with only one single-family dwelling, no additional parking shall be required.

3. **Development standards.** The expansion shall be consistent in style and materials with the existing building, and shall conform to the current development standards of the zone.

D. **Conforming residential use with nonconforming parking.** A conforming residential use (i.e., that does not exceed the allowable density for the zone and is located in a zone that permits the residential use) with nonconforming parking may be expanded as follows:

1. **Demolition of nonconforming parking.** Nonconforming parking demolished during remodeling or additions may be replaced with new parking of equal size or a more conforming size. The new parking shall provide for the best feasible turning radius. For the purposes of this Section, "best feasible turning radius" means the most conforming turning radius that may be created by relocating the new parking on the lot up to the point it conflicts with the existing building, and applying the turning radius reduction measures established in Section 21.41.243, to the greatest extent feasible.

2. **Addition of new dwelling unit.** The addition of new dwelling units on a lot shall require the provision of additional parking spaces for the new dwelling units as well as existing units if substandard in parking in accordance with the standards for new construction.

3. **Expansion of existing dwelling unit.** A residential use with nonconforming parking shall not be expanded by more than two hundred fifty (250) square feet after July 1, 1989, without providing additional parking. Any expansion beyond the first two hundred fifty (250) square feet of cumulative addition to the site shall require one (1) additional conforming parking space for each additional two hundred fifty (250) square feet or portion thereof. For a lot with only one single-family dwelling, no additional parking shall be required.

E. **Nonconforming commercial, institutional and park uses.**

1. **General.** Nonconforming uses shall not be expanded to occupy a greater area of land or building than was occupied at the time the use or structure became nonconforming.

F. **Nonconforming industrial uses.**

1. **General.** Nonconforming industrial uses shall not be expanded to occupy a greater area of land or building than was occupied at the time the use or structure became nonconforming.

2. **Machinery and equipment.** Nonconforming machinery and equipment requiring a building permit may be relocated within the site or replaced with machinery or equipment of equal size or capabilities. The number of machines or equipment, the size of the machines or equipment, or the capabilities of the machines or equipment to do heavier work may not be expanded.

3. **Outside uses.** Outside nonconforming equipment and machinery may be relocated or altered, provided the equipment or machinery is not relocated any closer to the nearest residential district.

4. **Volumes.** Increased sales, production or throughput volume shall not be considered as an expansion, provided the use does not expand to occupy additional land or another building.

(ORD-24-0033 § 15, 2024; ORD-05-0037 § 1, 2005; Ord. C-7663 § 5, 1999)

21.27.065 Interior alteration to residential uses with nonconforming parking to create additional bedrooms.

A. **Single-family residential.** Interior alteration of an existing dwelling unit, on a lot with only one single-family dwelling, to create additional bedrooms shall not require provision of additional parking.

B. **Duplex, Triplex, and Multifamily residential.** Interior alteration or addition of GFA to an existing dwelling unit in a duplex, triplex, or multifamily dwelling to create additional bedrooms is prohibited unless parking is provided for the unit(s) being altered in compliance with the requirements of Chapter 21.41.

(ORD-24-0033 § 16, 2024; ORD-09-0004 § 1, 2009; ORD-05-0037 § 2, 2005)

21.27.070 Change in use.

A nonconforming use may be changed to a conforming use, and may be changed to another nonconforming use if the use or structure housing the nonconforming use has not been abandoned for twelve (12) months (see Section 21.15.030) or the structure has not been demolished (see Section 21.15.750), as follows:

A. **To a CNP permitted use.** An existing nonconforming nonresidential use may change to a CNP (neighborhood pedestrian) permitted use.

B. **To another nonconforming use with an administrative use permit.** An existing nonconforming use may be changed to another nonconforming use if an administrative use permit is granted as provided for in this Title and provided:

1. A special building inspection, is conducted to ensure the building conforms or can be repaired to conform to minimum building, plumbing, fire, housing, electrical and earthquake code provisions as necessary to protect public health and safety; and

2. The change of use is necessary to avoid an unnecessary hardship on the property owner due to the condition of the structure, the value of the property or the potential economic life of the building; or

3. The change of use will allow a designated City landmark to be economically productive, thus extending the life of the structure, as long as the proposed use and rehabilitation are approved by the Cultural Heritage Commission; and

4. The change of use will provide a service or will be beneficial to the neighborhood, and will more closely conform to the zoning of the site than the existing use.

C. **Change of use with nonconforming parking.** A use with nonconforming parking may change to another use without adding parking except:

1. If the new use would require more parking than the existing use. Then, in order to establish the new use, the applicant shall add parking equal to the difference between the parking requirement of the existing use and the new use (net change in parking intensity), except that this Subsection 21.27.070.C.1 shall not apply as provided in Section 21.41.165; and

2. If the new use is a limousine service or a fleet service/company vehicle operation, motel, hotel, inn, bed and breakfast inn, other transient lodging, or event center, the applicant shall provide parking as required by Chapter 21.41.

(ORD-24-0033 § 17, 2024; Ord. C-7663 § 5, 1999)

21.27.080 Determination of nonconforming non-residential parking rights.

When determining the nonconforming parking rights that apply to a non- residential building or use of land, the Director of Community Development or designee shall base this determination on the current parking requirement (before exceptions) for the most intense or highest parking requirement land use that was legally established for the building or site or portion thereof (e.g., tenant space) in question, provided that the building or structure that contained or comprised the most intense or highest parking requirement land use has not been demolished. This Section shall not be construed to create transference of nonconforming parking rights between buildings or tenant spaces within a site or lot or parcel. For land uses with no building area, this Section shall not apply (see Subsection 21.27.050.B.4).
(ORD-24-0033 § 4, 2024)

21.27.090 Restoration.

Any building containing a nonconforming use or any nonconforming structure may be repaired and restored to its nonconforming state if the need for repairs or restoration shall be the result of fire,

explosion, earthquake, imminent public hazard, acts of terrorism, sabotage, vandalism, warfare or abatement of earthquake hazard in accordance with City regulations. Such restoration shall comply with the following conditions:

A. **Level of restoration.** The damaged use or structure may be repaired or rebuilt to the area and footprint of the previous use or structure. Alternatively, the use or structure may be repaired or rebuilt to a more conforming area or footprint.

B. **Additional floor area added.** If during restoration and/or reconstruction additional floor area is added, the use or structure shall abandon its nonconforming status.

C. **Time limit.** The repairs must be commenced within one year of the event causing damage to the use or structure, and the repairs must be diligently pursued until completed.

(Ord. C-7663 § 5, 1999)

21.27.110 Special uses and structures.

Nothing in this Chapter shall prohibit the establishment of special regulations for specific nonconforming uses and structures regulated by other Sections of the Zoning Code. Such regulations may provide for the retirement or amortization of those specific uses and structures.

(Ord. C-7663 § 5, 1999)

21.27.130 Historic landmark and landmark district exemption.

Any building, structure, or lot designated as an historic landmark or contributing building, structure, or lot located within a designated landmark district established under Chapter 2.63 of this Code, shall be exempted from restrictions of this Chapter relating to restoration (Section 21.27.090), interior alteration to residential uses with non-conforming parking to create additional bedrooms (Section 21.27.065) expansion (Section 21.27.060), and maintenance (Section 21.27.040), provided that any use or construction plans are approved with a Certificate of Appropriateness issued by the Cultural Heritage Commission. Such building, structure, or contributing building, structure, or lot located in the coastal zone and on a beach, in a wetland, stream, or lake, seaward of the mean high tide line, in an area designated as highly scenic, or within fifty feet (50') of a coastal bluff edge, may not be expanded or altered so as to increase the size or degree of non-conformity with a coastal resource protection or shoreline development policy of the LCP. Replacement or rebuild of such a structure in the coastal zone, including replacement or alterations of fifty percent (50%) or more of any major structural components, shall be permitted only if the replacement or rebuilt structure conforms to all policies of the LCP.

(ORD-21-0028 § 1, 2021; ORD-19-0028 § 7, 2019; Ord. C-7729 § 3, 2001: Ord. C-7663 § 5, 1999)

21.27.150 Amortization—Adult entertainment.

After May 18, 1996, no person shall cause or permit the continued operation, maintenance or use of a lot, building or structure as a legal nonconforming adult entertainment business which does not comply with the locational requirements of Section 21.45.110. For the purposes of this Section, the term "legal

nonconforming adult entertainment business" shall mean any adult entertainment business which existed on May 1, 1988, and any adult entertainment business which received a standards variance pursuant to former Subsection 21.45.110.B.

(Ord. C-7663 § 5, 1999)

21.27.160 Amortization—Fleet service/company vehicle operations.

Any fleet service/company vehicle operation as defined in Section 21.15.1065 which was lawfully in existence as of the effective date of this Section (August 7, 1998) which does not comply in whole or in part with the parking requirements of Section 21.41.216, shall be terminated or otherwise be brought into full compliance within one year of the effective date of this Section (August 7, 1998). For those fleet service/company vehicle operations which cannot be brought into compliance with these provisions because they do not meet the parking requirements of Section 21.41.216, the use may be extended for only one (1) additional period of time (not to exceed one (1) year), to be established by the Planning Commission, upon a showing by the operator of the use that such extension is reasonably necessary to permit the owner of the use adequate time to amortize or otherwise recover any long-term investment in the fleet service/company vehicle operation.

Any request for an extension of the one (1) year amortization period must be made in writing by the owner of the use to the Planning Commission by filing a request with the Planning Bureau of the Department of Planning and Building no later than sixty (60) days prior to the end of the one (1) year period provided for in this Section.

The Planning Commission may grant an extension of up to one (1) additional year only if the business is otherwise in compliance with all other applicable provisions of law, and upon a showing by the applicant/owner of the use:

A. That the business involved a substantial financial investment in real property, improvement or stock in trade, or

B. The business is subject to a written long-term lease entered into prior to January 1, 1995, with a termination date extending beyond one (1) year from the effective date of this Section, or

C. Other factors establishing that the nature of the business is such that the business cannot be easily relocated.

(Ord. C 7663 § 5, 1999)

CHAPTER 21.29 DEVELOPMENT AGREEMENTS

21.29.010 Purpose and construction.

A. The purpose of this Chapter is to establish procedures and requirements for the consideration of development agreements upon application by, or on behalf of property owners or other persons having a legal or equitable interest in the property proposed to be subject to the agreement. In this regard, it is intended that the provisions of this Chapter should be fully consistent, and in full compliance, with the provisions of Article 2.5 of Chapter 4 of Division 1 of Title 7 (commencing with Section 65864) of the California Government Code, and shall be so construed.

B. In construing the provisions of any development agreement entered into pursuant to this Chapter, those provisions shall be read to fully effectuate, and to be consistent with, the language of this Chapter, Article 2.5 of the California Government Code, cited above, and the agreement itself.

Should any apparent discrepancies between the meaning of these documents arise, then the documents shall control in construing the development agreement in the following order of priority:

1. The plain terms of the development agreement itself;

2. The provisions of this Chapter, and

3. The provisions of Article 2.5 of the California Government Code, cited above.

(Ord. C-6533 § 1 (part), 1988)

21.29.020 Application and processing.

A. Any owner of real property or other person having a legal or equitable interest in the property may request and apply through the Director of Planning and Building for the City to enter into a development agreement provided that:

1. The property proposed to be subject to the agreement shall be not less than eighty thousand (8,000) square feet in size;

2. The application is made on forms approved, and contains all information required, by the Director;

3. The status of the applicant as an owner of, or holder of legal or equitable interest in, the property is established to the satisfaction of the Director; and

4. The application is accompanied by the fee established pursuant to Subsection 21.29.020.C and all other lawfully required documents, materials and information.

B. The Director of Planning and Building, or his designee, is hereby empowered to receive, review, process and prepare, together with his recommendations, for Planning Commission and City Council consideration as applicable all applications for development agreements. He may call upon all other departments of the City to assist him in his responsibilities under this Chapter, which assistance shall be provided in a timely manner.

C. Processing fees, as established by resolution of the City Council, shall be charged for any application for a development agreement made pursuant to the provisions of this Chapter, and shall also be so established and charged for periodic reviews conducted pursuant to Section 21.29.070.

(Ord. C-6546 § 5, 1988; Ord. C-6533 § 1 (part), 1988)

21.29.030 Public hearings.

A. When an application for a development agreement is deemed complete by the Director of Planning and Building, he shall, within one hundred twenty (120) days, set the application,

together with his recommendations relating to it, for public hearing before the Planning Commission. Following conclusion of public hearing by the Commission, the Commission may recommend to the City Council that it approve, conditionally approve, or disapprove the application.

B. Within forty-five (45) days of final action by the Planning Commission and receipt of a written report of such action, the City Clerk shall set the application and written report of the Planning Commission for public hearing before the City Council. Following conclusion of public hearing by the City Council, the City Council shall approve, conditionally approve or deny the application.

C. Notice of the hearings set forth in Subsections A and B of this Section 21.29.030 shall be given in the form of a notice of intention to consider adoption of a development agreement as required by Section 65867 of the California Government Code.

D. Should the City Council approve or conditionally approve the application, it shall, as a part of its action of approval, direct the City Attorney to prepare a development agreement embodying the terms and conditions of the application as approved or conditionally approved by it, as well as an ordinance authorizing execution of the development agreement by the City manager on behalf of the City.

E. The ordinance shall set forth findings, and the facts supporting them, that the development agreement is consistent with the Long Beach General Plan and any and all specific plans and that it will promote the welfare and public interest of the City of Long Beach.

F. The ordinance may be subjected to referendum in the manner provided by law.

(Ord. C-6533 § 1 (part), 1988)

21.29.040 Content of development agreement.

A. **Mandatory contents.** A development agreement entered into pursuant to this Chapter must contain provisions that:

1. Specify the duration of the agreement;

2. Specify the permitted uses of the property;

3. Specify the density or intensity of use;

4. Set forth the maximum height and size of proposed buildings; and

5. Set forth provisions, if any, for reservation or dedication of land for public purposes.

B. **Permissive contents.** A development agreement entered into pursuant to this Chapter may:

1. Include conditions, terms, restrictions, and requirements for subsequent discretionary actions, provided that such conditions, terms, restrictions, and requirements for subsequent discretionary actions shall not prevent development of the land for the uses and to the density or intensity of development set forth in the agreement;

2. Provide that construction shall be commenced within a specified time and that the project or any phase thereof be completed within a specified time;

3. Include terms and conditions relating to applicant financing of necessary public improvements and facilities, including, but not limited to, applicant participation in benefit assessment proceedings;

4. Include such other terms, conditions and requirements as the City Council may deem necessary and proper, including, but not limited to, a requirement for assuring, to the satisfaction of the City, performance of all provisions of the agreement in a timely fashion by the applicant/contracting party.

(Ord. C-6533 § 1 (part), 1988)

21.29.050 Execution and recordation.

A. The City shall not execute any development agreement until on or after the date upon which the ordinance approving the agreement and enacted pursuant to Section 21.29.030 becomes effective.

B. An executed development agreement shall be recorded in the office of the Recorder of the County of Los Angeles no later than ten (10) days after it is entered into.

(Ord. C-6533 § 1 (part), 1988)

21.29.060 Environmental review.

The approval or conditional approval of a development agreement pursuant to this Chapter 21.29 shall be deemed a discretionary act for purposes of the California Environmental Quality Act.

(Ord. C-6533 § 1 (part), 1988)

21.29.070 Periodic review.

A. Every development agreement approved and executed pursuant to this Chapter shall be periodically reviewed during the term of the agreement every year following the date of its execution.

B. The purpose of the reviews conducted pursuant to this Section shall be to determine whether the applicant/contracting party or its successor in interest has complied in good faith with the terms of the development agreement. The burden shall be on the applicant/contracting party or its successor to demonstrate such compliance to the full satisfaction of, and in a manner as prescribed by the City.

C. If, as a result of periodic review pursuant to this Section, the City Council finds and determines, on the basis of substantial evidence, that the applicant/contracting party or its successor in interest has not complied in good faith with terms or conditions of the agreement, the City Council may order, after hearing, that the agreement be terminated or modified.

(Ord. C-6533 § 1 (part), 1988)

21.29.080 Effect of development agreement.

Unless otherwise provided by the development agreement, rules, regulations and official policies governing permitted uses of the land, governing density, and governing design, improvement and construction standards and specifications, applicable to development of the property subject to a development agreement, are the rules, regulations and official policies in force at the time of execution of the agreement. A development agreement does not prevent the City, in subsequent actions applicable to the property, from applying new rules, regulations and policies which do not conflict with those rules, regulations and policies applicable to the property under the development agreement, nor does a development agreement prevent the City from denying or conditionally approving any subsequent development project application on the basis of such existing or new rules, regulations and policies.

(Ord. C-6533 § 1 (part), 1988)

21.29.090 Approved development agreements.

Pursuant to this Chapter, the City Council has approved those certain development agreements as described below:

Development Agreement	Contract Number	Ordinance Number	Effective Date
Alamitos Land Company	21694	C-6788	10/5/1990
Elks Building and Holding Association of Long Beach, Inc.	21695	C-6788	10/5/1990
IDM Commercial Development Corporation	21696	C-6788	10/5/1990
Kilroy Long Beach Associates	21697	C-6788	10/5/1990
Nationwide Theaters Corporation	21698	C-6788	10/5/1990
Goldrich and Kest	21700	C-6788	10/5/1990
Tien P. Zee	22206	C-6925	9/22/1991
Pike Properties	23523	C-7164	1/6/1994
Douglas Park		C-7960	12/21/2004

(ORD-09-0031, §§ 1—6, 2009; Ord. C-7959 § 2, 2004: Ord. C-6533 § 1 (part), 1988)

CHAPTER 21.30 DISTRICTS ESTABLISHED

21.30.010 Districts designated.

The incorporated territory of the City of Long Beach is divided into the land use districts indicated in Table 30-1 in order to regulate the location of residences, businesses and industries; the location of buildings and structures; the uses of land; the height and bulk of buildings; the area of yards and other open space facilities; and off-street parking facilities.

(Ord. C-7047 § 6, 1992; Ord. C-6933 § 9, 1991; Ord. C-6533 § 1 (part), 1988)

21.30.020 Regulations for all districts.

These Zoning Regulations divide the City into districts within which the location, height and bulk of buildings or structures and the uses of buildings, structures or land are regulated as specified.

(Ord. C-6533 § 1 (part), 1988)

21.30.030 Use district map adopted.

The use districts and the boundaries of such districts are shown upon a map consisting of thirty (30) parts, being numbered consecutively from 1 to 30, containing the districts which are established by this Chapter. The use district map is on file in the office of the Department of Planning and Building, and said map and all notations, references and other information shown on it, including the index map and the chart showing the symbols and legends employed, are incorporated by reference and shall be deemed as much a part of this Title as if the matters and information set forth by the map were fully described in this Chapter.

(Ord. C-6533 § 1 (part), 1988)

21.30.040 District boundary determination.

In the event uncertainty exists as to the boundaries of any district shown on the use district map, the following shall govern:

Table 30-1
Zoning Districts Established

Use District Symbol	Use Classification	Chapter
R-1-S	Single-family Residential, small lot	21.31
R-1-M	Single-family Residential, moderate lot	21.31
R-1-T	Single-family Residential, townhomes	21.31
R-1-N	Single-family Residential, standard lot	21.31
R-1-L	Single-family Residential, large lot	21.31
R-2-S	Two-family Residential, small lot	21.31
R-2-I	Two-family Residential, intensified development	21.31
R-2-N	Two-family Residential, standard lot	21.31
R-2-A	Two-family Residential, accessory second unit	21.31
R-2-L	Two-family Residential, large lot	21.31
R-3-S	Low-density Multi-family Residential, small lot	21.31
R-3-4	Low-density Multi-family Residential	21.31
R-3-T	Multi-family Residential, Townhouse	21.31
R-4-H	Dense Multiple Residential, high-rise	21.31
R-4-N	Medium-density Multiple Residential	21.31
R-4-R	Moderate-density Multiple Residential	21.31
RM	Mobile homes, modular and manufactured residential	21.31
R-4-U	Dense Multiple Residential, urban	21.31
RP	Residential, Planned Unit Development	21.31
CO	Office Commercial	21.32
CH	Highway Commercial	21.32
CT	Tourist and Entertainment Commercial	21.32
CS	Commercial Storage	21.32
CNP	Neighborhood Pedestrian-Oriented Commercial	21.32
CNA	Neighborhood Commercial Automobile-Oriented	21.32
CNR	Neighborhood Commercial and Residential	21.32
CCA	Community Commercial Automobile-Oriented	21.32
CCP	Community Commercial Pedestrian-Oriented	21.32
CCR	Community R-4-R Commercial	21.32
CCN	Community R-4-N Commercial	21.32
CHW	Regional Highway Commercial	21.32
IL	Light Industrial	21.33
IM	Medium Industrial	21.33
IG	General Industrial	21.33
IP	Port-related Industrial	21.33
I	Institutional	21.34

Table 30-1 Zoning Districts Established		
Use District Symbol	**Use Classification**	**Chapter**
P	Park	21.35
PR	Public Right-of-Way	21.36
PD	Planned Development	21.37
(H)	Horse Overlay	21.38
(HR)	High-Rise Overlay	21.39
(HL)	Height-Limit Overlay	21.40

A. Unless otherwise indicated by dimensions shown on the map, every district boundary line is intended to follow lot lines or the centerlines of streets or alleys as they existed at the time the district was established.

B. Where a single lot or parcel of land is divided by a district boundary line, each portion of the lot or parcel shall comply with the provisions of the regulations that apply to the district wherein that portion of the lot is located.

C. Where uncertainty exists as to the location of the district boundary line, the Zoning Administrator shall have the authority to make a determination as to the intended location of the boundary.

(ORD-15-0037, § 1, 2015; Ord. C-7663 § 29, 1999; Ord. C-7360 § 2, 1995; Ord. C-6533 § 1 (part), 1988)

21.30.050 Zoning of annexed territory.

Upon formal notification by the City of its intention to undertake an annexation, the Department of Planning and Building shall initiate a study to determine the appropriate zoning for the property intended for annexation. After such a study, the Zoning Administrator shall begin proceedings for the prezoning of the property in accordance with the procedures governing a rezoning. At the conclusion of the proceeding, the Zoning Administrator shall notify the appropriate City agency of the prezoning classification of the property should the annexation be consummated. The City shall convey this information to the Local Agency Formation Commission if required to do so.

(Ord. C-6533 § 1 (part), 1988)

21.30.060 Reclaimed submerged lands.

A. **Reclaimed By Natural Accretion.** Unless otherwise determined by a rezoning, any submerged lands which may be reclaimed by natural accretion shall immediately be subject to the same regulations of this Title as those specified for the most restrictive abutting district, provided the zoning conforms to the principles and policies stated in the local coastal program of the General Plan. The use district map shall be adjusted by a notation indicating the classification without further procedure. If the most restrictive abutting zone does not conform to the principles and policies of the local coastal program, such restrictive zoning shall apply until the area in question is rezoned.

B. **Reclaimed By Fill.** Any submerged lands to be reclaimed by fill for use as a land area shall be prezoned prior to City Council approval of the fill. However, fill activities required in an

emergency for the protection of public health or safety shall be exempt from this requirement, and any fill in the port district indicated on the Port Master Plan automatically be designated Port District (MP).

(Ord. C-6533 § 1 (part), 1988)

21.30.070 Vacated street or alley.

Whenever a dedicated street or alley or any portion thereof is vacated, it shall be automatically classified in the same district as the abutting property, and the use district map shall be adjusted without further procedure. If opposite sides of the street or alley are in different zones, the new boundary of the use district shall be at the centerline of the former street or alley.

(Ord. C-6533 § 1 (part), 1988)

21.30.080 Savings.

In adopting this Chapter 21.30, it is the intention of the City Council that the use districts and use district boundaries as first adopted herein shall be the same as those in effect on the date of adoption of the Ordinance first codifying and adopting this Chapter 21.30, and should the provisions of this Chapter 21.30 be, for any reason, invalidated, voided or set aside, in whole or in part, it is the intention of the City Council that the use districts and use district boundaries as they existed immediately prior to the adoption of this Chapter 21.30 shall continue in full force and effect until they may thereafter be lawfully amended, revised or repealed.

(Ord. C-6533 § 1 (part), 1988)

CHAPTER 21.31 RESIDENTIAL DISTRICTS

21.31.010 Purpose.

The intent of this Chapter is to create, preserve and enhance residential areas for a range of housing types and lifestyles. These regulations are directed toward minimizing conflicts and incompatibilities between mixed housing types and between the activities which may occur within the various types of residential development. These regulations also serve to encourage the maintenance and rehabilitation of existing residences and to ensure that new housing is an asset to existing neighborhoods.

(Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.31.020 Districts established.

Twenty (20) residential zoning districts are established by this Chapter as follows:

A. The R-1-S District is a single-family residential district with small lots. The District recognizes the existing subdivision pattern and is established to accommodate the requirements of a modern home on existing small lots. This Zone is only appropriate in high open space amenity areas such as the Coastal Zone. This implements Land Use District No. 1 of the General Plan.

B. The R-1-M District is a single-family residential district with moderate sized lots. This District recognizes the difficulty of developing odd sized and shaped parcels with normal sized lots. It also recognizes the City's objective of providing more affordable ownership housing and the effect of lot size on housing costs. This District implements Land Use District No. 1 of the General Plan.

C. The R-1-N District is a single-family residential district with standard lots. This District recognizes the outdoor lifestyle characteristic of Southern California and is established to protect such areas from overcrowding and conversion to higher densities. This implements Land Use District No. 1 of the General Plan.

D. The R-1-L District is a single-family residential district with large lots. This District recognizes the need for an open, uncrowded living environment within metropolitan centers. This implements Land Use District No. 1 of the General Plan.

E. The R-1-T District is a single-family district of townhouses. It implements Land Use District No. 3A of the General Plan.

F. The R-2-S District is a two-family residential district with small lots. This District recognizes existing subdivision and use patterns in distinct portions of the City and is established to accommodate such patterns without crowding and congestion. This Zone is generally not suitable outside of the Coastal Zone. This Zone implements Land Use District No. 2 of the General Plan.

G. The R-2-I District is a two-family residential district with intensified development on the lots. This District recognizes existing subdivision and use patterns in distinct portions of the City and allows an intensity of development appropriate only in areas within immediate proximity to public open space. This Zone implements Land Use District No. 2 of the General Plan.

H. The R-2-N District is a two-family residential district with standard lots. This District recognizes the need for two-family, moderate density housing with outdoor living space. This Zone implements Land Use District No. 2 of the General Plan.

I. The R-2-A District is a two-family residential district with standard lots. This District restricts one (1) unit to a small accessory unit. This District recognizes the desire to maintain the existing character of a community by retaining single-family dwellings while adding a second unit to the rear. This Zone implements Land Use District No. 2 of the General Plan.

J. The R-2-L District is a two-family residential district with large lots. It recognizes the use pattern of two-family dwellings in older, large lot subdivisions. It also encourages the preservation of these neighborhoods and also provides opportunity for spacious, well-designed, two-family developments. This Zone implements Land Use District No. 2 of the General Plan.

K. The R-3-S District is a three-family residential district. This District recognizes the constraints small lots place on multifamily developments and the adverse consequences related to large scale multifamily development in existing neighborhoods of single-family use. This Zone implements Land Use District No. 3B of the General Plan.

L. The R-3-4 district is a four-family residential district. The district recognizes the constraints lot size places on multifamily development and the adverse consequences related to large scale multifamily uses development in single-family neighborhoods.

M. The R-3-T district is a townhouse or row house residential district on small (especially shallow) lots. It is intended for residential lots located along significant traffic arteries where a lot line to lot line, high lot coverage, inward-oriented dwelling is appropriate. This district is typically appropriate in areas in transition from commercial to residential use. This implements land use district No. 3A of the General Plan.

N. The R-4-R district is a moderate density, multifamily residential district with restrictions on building height. It is intended to provide a moderate density use consistent in scale with existing older and lower density developments. The district is designed to encourage full development in established moderate density neighborhoods. This implements land use district No. 3B of the General Plan.

O. The R-4-N district is a high density, multifamily residential district. It is intended to meet the demand of a broad segment of the population which provides a diversity of housing choices. This implements land use district No. 4 of the General Plan.

P. The R-4-H district is a high-rise, high density, multifamily residential district. The district is intended to encourage residential development with a distinctive urban living environment. This implements land use district No. 6 of the General Plan.

Q. The RM district is a single-family residential district for mobile homes and manufactured housing. This district recognizes the significant contribution that mobile home housing developments can make toward providing a diversity of housing choices. This district is established to encourage such development on large sites. This implements land use district No. 2 of the General Plan.

R. The R-4-U district is a high-density, multifamily residential district. It is intended to provide housing opportunities in an urban context and design style to support downtown activity center employment with adjoining housing. This implements land use district No. 5 of the General Plan.

S. The R-4-M district is a moderate density subdivided mobile home park development district. The district recognizes the wishes of mobile home owners in rental mobile home parks to be given the opportunity to own the space on which their mobile home is located. Such subdivisions of mobile home parks to resident ownership is encouraged by the State of California as an appropriate method of preserving low-income housing stock.

T. The RP district is a residential Planned Unit Development (PUD) district. It is intended to encourage innovative, creative developments according to good urban planning principles, across a range of potential densities providing new and diverse housing opportunities, with integrated community facilities and benefits. The district is designed to reduce or eliminate rigidity that otherwise may result from the application of traditional development standards, and to encourage

the development or recycling of larger parcels of land as coherent, integrated projects. The zoning symbol "RP" must be followed by a number indicating the approved density in DU/ac, such as "RP-12" or "RP-18." This implements Land Use District No. 3A of the General Plan.

(ORD-15-0037 § 3, 2015; ORD-07-0019 § 5, 2007; Ord. C-6933 § 10, 1991; Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.31.030 Site plan review.

Site plan review is required for all projects with five (5) or more units. This includes both new construction as well as additions to projects of five (5) units or more (Division V of Chapter 21.25—Site Plan Review).

(Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.31.040 Reclassification of district.

The R-3-3 district is reclassified to become the R-3-S district. Any reference to either district shall be treated as a reference to the R-3-S district. The R-3-L district is reclassified to become the R-4-R district. Any reference to either district shall be treated as a reference to the R-4-R district.

(Ord. C-6933 § 11, 1991: Ord. C-6684 § 41 (part), 1990)

DIVISION I.

PERMITTED USES

21.31.110 Permitted uses.

Table 31-1 indicates all uses permitted (Y), not permitted (N), permitted by conditional use permit (C), permitted as an accessory use (A) and permitted as a temporary use (T) in the residential zones. Permitted uses with an asterisk (*) are subject to special development standards contained in Chapter 21.45 of this Title. Accessory uses, conditional uses and temporary uses also have special development standards, as set forth in Chapters 21.51, 21.52 and 21.53, respectively. All projects within the Coastal Zone are also subject to the Local Coastal Program and provisions as set forth in Chapter 21.25 Division IX.

(ORD-20-0025 § 3, 2020; Ord. C-7247 § 8, 1994; Ord. C-6933 § 12, 1991; Ord. C-6895 § 8, 1991: Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.31.120 Prohibited uses.

All uses not listed in Table 31-1 as permitted uses, conditional uses, accessory uses or temporary uses, including recreational or other vehicles occupied as a dwelling unit, are prohibited in residential zone districts.

(Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

DIVISION II.

DEVELOPMENT STANDARDS

21.31.201 General provisions.

The development standards indicated in Tables 31-2 A and B shall apply to all structures in residential zones.

(Ord. C-7247 § 9, 1994; Ord. C-7064 § 4, 1992; Ord. C-7032 § 14, 1992; Ord. C-6963 § 1, 1992; Ord. C-6933 §§ 13, 14, 1991: Ord. C-6895 § 9, 1991: Ord. C-6822 § 7, 1990; Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.31.205 Units per lot and lot area per unit.

Table 31-2 indicates the maximum number of units permitted by each residential district and the required density (land area per unit). The number of units shall not be subject to the standard variance provisions contained in this Title. In calculating the number of units permitted on the site, the following rules shall apply:

Table 31-1
Uses in Residential Zones

Residential Zone District Land Use		R-1-S	R-1-M	R-1-L	R-1-N	R-1-T	R-2-S	R-2-I	R-2-L	R-2-N	R-2-A	R-3-S	R-3-4	R-3-T	R-4-R	R-4-N	R-4-H(d)	R-4-U	R-M	R-4-M	RP
Residential Uses																					
Single-family detached		Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	N	Y	Y	Y	Y	Y	N	Y
Single-family attached		N	N	N	N	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	N	N	Y
Duplex		N	N	N	N	Y(b)	Y(b)	Y	Y	Y	Y(c)	Y	Y	Y	Y	Y	Y	Y	N	N	Y
Three-family dwelling		N	N	N	N	N	N	N	N	N	Y	Y	Y	N	Y	Y	Y	Y	N	N	Y
Four-family dwelling		N	N	N	N	N	N	N	N	N	N	Y	Y	N	Y	Y	Y	Y	N	N	Y
Multi-family dwelling		N	N	N	N	N	N	N	N	N	N	N	N	N	Y	Y	Y	Y	N	N	Y
Townhouse		N	N	N	N	N	N	N	N	N	Y	Y	Y	Y	Y	Y	Y	Y	N	N	Y
Modular or manufactured housing unit placed on a permanent foundation		Y	Y	Y	Y	Y	Y	Y	Y	Y	N	N	N	N	N	N	N	N	Y	Y	N
Mobile home park (as to unsold spaces) (see Section 21.52.243)		C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	Y	N
Subdivision of existing mobile home park (see Section 21.52.244)																				C	
Accessory dwelling unit (see Section 21.51.276)	Limited accessory dwelling unit	A	A	A	A	A	N	N	N	N	N	N	N	N	N	N	N	N	N	N	N
	Conforming accessory dwelling unit	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	N	N	N
Special group residence (fraternity and sorority house, college dormitories, residential care facility, convalescent hospitals, senior citizen housing, housing for persons with disabilities, halfway houses, communal housing, and military barracks) (see Section 21.52.271)		N	N	N	N	N	N	N	N	N	N	N	N	N	C	C	C	C	N	N	N
Transitional Housing (e), (f) (see Section 21.45.153)		Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y
Supportive Housing (e), (f)		Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y
Emergency Shelter (see Section 21.45.132)		N	N	N	N	N	N	N	N	N	N	N	N	N	N	C	C	C	N	N	N
Commercial Uses																					
Bed and breakfast inns (see Section 21.52.209)		N	N	N	N	N	N	N	N	N	N	N	N	AP	AP	AP	AP	AP	N	N	N
Office commercial (see Section 21.52.251)		N	N	N	N	N	N	N	N	N	N	N	N	C	C	C	Y(a)	C	N	N	N
Residential historic landmark buildings (see Section 21.52.265.5)		AP	AP	AP	AP	AP	AP	AP	AP	AP	AP	AP	AP	AP	AP	AP	AP	AP	AP	N	AP

Table 31-1
Uses in Residential Zones

Residential Zone District Land Use	R-1-S	R-1-M	R-1-L	R-1-N	R-1-T	R-2-S	R-2-I	R-2-L	R-2-N	R-2-A	R-3-S	R-3-4	R-3-T	R-4-R	R-4-N	R-4-H(d)	R-4-U	R-M	R-4-M	RP
Restaurant (see Section 21.52.269)	N	N	N	N	N	N	N	N	N	N	N	N	N	N	N	C	C	N	N	N
Retail commercial	N	N	N	N	N	N	N	N	N	N	N	N	N	N	N	Y(a)(g)	N	N	N	N
Through-block commercial (see Section 21.52.279)	N	N	N	C	N	N	N	N	C	N	C	C	C	C	C	C	C	C		
Other Uses																				
Carnival, fiesta, other outdoor exhibition or celebration (see Section 21.53.109)	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	N	T
Church (see Section 21.51.213)	N	N	N	C	N	N	N	N	C	C	C	C	C	C	C	C	C	N	N	N
Common recreational facilities (permitted only for multi-family developments with 21 or more units)	N	N	N	N	N	N	N	N	N	N	N	N	A	A	A	A	A	A	Y	Y
Construction trailer (see Section 21.53.103)	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	N	T
Courtesy parking for nonresidential use (see Section 21.52.221)	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	A	C	C	N	N
Child daycare home - small or large facility (1—14 persons) (see Section 21.51.230)	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	N	A
Daycare center (15 or more persons) (see Section 21.52.249)	C	C	C	C	C	C	C	C	C	C	Y	Y	Y	Y	Y	Y	Y	C	N	N
Detached accessory room (see Section 21.31.245)	N	N	A	A	A	N	N	A	A	A	A	A	A	A	A	A	A	N	Y	N
Electrical distribution station (see Section 21.52.223)	N	N	N	N	N	N	N	N	N	N	N	N	C	C	C	C	C	C	N	N
Group home (1—6 persons) (see Section 21.15.1200)	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	N	N
Home occupation (see Section 21.51.235)	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	Y	A
Interim Parks																				
a. Community gardens (see Section 21.52.260)	N	N	N	N	N	N	N	N	N	N	N	N	N	N	N	N	N	N	N	IP
b. Passive parks (see Section 21.45.155)	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	N	IP
c. Playgrounds (see Section 21.52.260	IP	IP	IP	IP	IP	P	IP	IP	IP	IP	IP	IP	IP	IP	IP	IP	IP	IP	Y	IP

Table 31-1
Uses in Residential Zones

Residential Zone District Land Use	R-1-S	R-1-M	R-1-L	R-1-N	R-1-T	R-2-S	R-2-I	R-2-L	R-2-N	R-2-A	R-3-S	R-3-4	R-3-T	R-4-R	R-4-N	R-4-H(d)	R-4-U	R-M	R-4-M	RP
d. Recreational parks (see Section 21.52.260)	AP	AP	AP	AP	AP	AP	AP	AP	AP	AP	AP	AP	AP	AP	AP	AP	AP	AP	N	IP
e. Urban Agriculture (h)	AP	AP	AP	AP	AP	AP	AP	AP	AP	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y
Private school (elementary) (see Section 21.52.263)	N	N	N	N	N	N	N	N	N	N	N	N	C	C	C	C	C	N	N	N
Recreational vehicles - parking and storage (see Section 21.41.276)	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	Y	N
Room rentals (see Section 21.51.270)	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	Y	A
Safe parking site (i) (see Section 21.45.163)	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A
Sandwiched lot development (see Section 21.52.270)	N	N	N	C	N	N	N	N	C	C	C	C	C	N	N	N	N	N	N	N
Storage of chattel (see Section 21.51.290)	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A
Temporary activating use (see Section 21.53.115)	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T
Trailer or dwelling unit used as home sales office	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T
Vehicle parking and storage (see Sections 21.41.281 and 21.41.283)	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A
Wireless telecommunications facilities (see Chapter 21.56)	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C

All projects within the Coastal Zone are also subject to the Local Coastal Program and provisions as set forth in Chapter 21.25 Division IX.

Use, operating, and other regulations contained outside of Title 20 and Title 21 are not certified by the California Coastal Commission.

Abbreviations:

Y = Yes (permitted use).

N = Not permitted.

C = Conditional use permit required. Refer to provisions in Chapter 21.52.

A = Accessory use. Permitted subject to provisions contained in Chapter 21.51.

T = Temporary Use. Permitted subject to provisions contained in Chapter 21.53.

AP = Administrative use Permit required. Refer to provisions in Chapter 21.52.

IP = Interim park use permit required. Refer to provisions in Chapter 21.52.

Notes:

(a) Retail and office commercial uses are subject to the development standards specified in Section 21.45.160.

(b) Unless the site can provide 4 independently accessible parking spaces, one unit is limited to 450 sq. ft. as a zero bedroom.

(c) One unit shall not exceed 800 sq. ft. or 12 percent of lot area, whichever is greater. The 800 sq. ft. limit shall apply to the rear unit. If both units exceed 800 sq. ft., the rear unit, or bottom unit in a stacked duplex, shall be considered the legal nonconforming unit.

(d) For commercial uses permitted in the R-4-H zone see Section 21.45.160.

(e) This use does not include uses that meet the definition of "Residentional care facility" or "Special group residences" as defined in Chapter 21.15.

(f) Development is subject to the density limits of the zoning district in which it is located.

(g) Adult-Use Cannabis Businesses prohibited.

(h) All urban agriculture uses, whether by-right or permitted through an Administrative Use Permit, must meet the standards outlined in Section 21.52.260.

(i) Allowed only as an accessory use to an existing institutional use where all lots are owned and operated by the same entity.

(ORD-20-0026 §§ 7—9, 2020; ORD-20-0025 § 4, 2020; ORD-20-0018 § 5, 2020; ORD-18-0025 § 9(Exh. A), 2018; ORD-18-0015 § 1(Exh. A), 2018; ORD-17-0031 § 9(Exh. A), 2017; ORD-17-0024 § 1(Exh. A), 2017; ORD-16-0015 § 1(Exh. A), 2016; ORD-15-0037 § 2(Att. A), 2015; ORD-11-0011 § 1(Exh. A), 2011; ORD-07-0019 § 1, 2007; ORD-06-0058 § 1(Att. 1), 2006; Ord. C-7629 § 3, 1999; Ord. C-7550 § 5, 1998; Ord. C-7399 § 3, 1996; Ord. C-7378 §§ 3, 4, 1995)

Table 31-2A
Residential Development Standards

District	Units Per Lot	Lot Area Per Unit (Sq. Ft.)	Minimum Lot Area (Sq. Ft.) (a, c)	Minimum Lot Width (Ft.)(a, c)	Minimum Yard Setbacks (Ft.)(j, l)			Maximum Height(d, h)	Maximum Lot Coverage (% of Lot)	Minimum Usable Open Space Per Unit	Floor Area Ratio
					Front	Side	Rear(k)				
R-1-S	1	2,400	2,400	30	8(i)	3	8	24 ft./28 ft.	N/A	6%(o)	1.2
R-1-M	1	3,600	3,600	40	8	4	8	25 ft. 2 St.	N/A	6%(o)	0.67
R-1-N	1	6,000	6,000	50	20	4(b)	1st St. 10 2nd St. 30	25 ft. 2 St.	50%	16%(o)	0.6
R-1-L	1	12,000	12,000(s)	60	25	6	30	25 ft. 2 St.	40%	23%(o)	0.6
R-1-T	1	3,000	3,000	25(g)	10	5	8	25 ft. 2 St.	N/A	6%(o)	1.2
R-2-S	2	1,200	4,800	40	15(i)	3	10	24 ft./28 ft. (e) 2 St.	N/A	2%(o)	1.3
R-2-I	2	1,000	4,800	40	3(i)	3	8	32 ft./35 ft. (e) 3 St.	N/A	2%(o)	N/A
R-2-N	2	3,000	6,000	50	15	4(b)	20	25 ft. 2 St.	60%	6%(o)	0.60
R-2-A(n)	2	3,000	6,000	50	15	4(b)	20	25 ft. 2 St.	60%	6%(o)	0.60
R-2-L	2	4,000	8,000	50	15	4	10	35 ft. 2 St.	40%	8%(o)	N/A
R-3-S(l)	3	2,100	6,300	50	15	10%(q)	20	25 ft. 2 St.	N/A	250(p)	N/A
R-3-4	4	1,700	4,500	50	15	10%(q)	20	25 ft. 2 St.	N/A	200(p)	N/A
R-3-T(l)	N/A	See Table 31-2B	3,000	25(g)	15	10%(q)	20	28 ft.(f) 2 St.	N/A	250(p)	N/A
R-4-R(l)	N/A	See Table 31-2B	18,000	120	15	10%(q)	20	28 ft. 2 St.(f)	N/A	150(p)	N/A
R-4-N(l)	N/A	See Table 31-2B	18,000	120	15	10% (q)(r)	20(r)	38 ft.(f) 3 St.	N/A	150(p)	N/A
R-4-H(l)	N/A	See Table 31-2B	18,000	120	10(m)	10% (q)(r)	20(r)	See Table 31-3A	50%	150(p)	N/A
RM	N/A	2,400	18,000	120	10	4	10	30 ft. 2 St.	65%	200(p)	N/A
R-4-U(l)	N/A	See Table 31-2B	22,500	180	10	10% (q)(r)	20(r)	65 ft.(f) 5 St.	N/A	150(p)	3.0
R-4-M	1	3,100 sq. ft.	3,100 sq. ft.	32 ft.	0 ft.	5 ft.	3 ft.	20 ft.	75%	10%	N/A

Abbreviations: Sq. Ft. = square feet; St. = story

NOTES: Table 31-2A, Residential Development Standards

(a) If this lot size exceeds the standards for the neighborhood (as defined in the subdivision regulations), the standard of the neighborhood may be used.

(b) If a lot is 27 feet or less in width, see Subsection 21.31.215.F, special narrow lot standards.

(c) These standards apply only to new subdivisions of land area. They do not apply to new construction on existing lots or to air space divisions of existing lots.

(d) In general, height is measured to the midpoint of the roof (Section 21.15.1330—Definitions). However, in some zones, the building height limit consists of 2 numbers. The first number indicates the height of the midpoint of roof, and second number indicates height of building measured to peak of roof. A project shall conform to both standards.

(e) An additional 2 feet may be permitted to accommodate access stairs to the roof.

(f) See Section 21.31.220 for special height provisions.

(g) New subdivisions, including corner lots, shall orient the lots to the side street.

(h) For garages and other accessory structures, refer to Section 21.31.245 (Accessory structures).

(i) Average setback may apply as outlined in Subsection 21.31.215.C (Front yard averaging).

(j) Special standards apply for reverse corner lots as specified in Subsection 21.31.215.D (Rear yard).

(k) The setback shall be measured from the centerline of an abutting alley where such exists. For shallow lots, see Special Standards in Subsection 21.31.215.D.

(l) If the garage takes direct access from the street, the garage shall be set back pursuant to Section 21.31.245.

(m) Commercial uses—see Special Development Standard, Section 21.45.160.

(n) One unit is limited to not more than 800 square feet or 12 percent of lot area, whichever is greater.

(o) Percent of lot area per unit.

(p) Square foot per unit. See Sections 21.31.230 (Usable Open Space) and 21.31.240 (Privacy Standards) for detailed standards.

(q) The side yard setback is 10 percent of lot width on each side, but in no case shall the interior side yard setback be required to exceed 10 feet (except as specified in footnote(s)). The side street side yard setback shall be 15 percent of lot width, but in no case shall it be required to exceed 15 feet. Neither setback shall ever be less than 3 feet.

(r) See Subsections 21.31.215.D.3 and 21.31.215.E.3, Special Side and Rear Yard Setback Restrictions.

(s) Lots created through a land subdivision or lot merger shall not exceed 20,000 square feet. Lot mergers shall not be comprised of more than two lots.

(t) A patio cover or canopy consisting of fabric, canvas, or similar durable, weatherproof material (and its supporting structure), may exceed the maximum building height when constructed above a roof deck, but shall be limited to a height of eight feet, six inches (8'-6") above the finish floor of the roof deck. The supporting structure shall be open on all sides. The patio cover or canopy shall not obstruct views of the beach, bay, ocean, or tidelands from any public vantage point or public area in the coastal zone or tidelands. A building permit shall be obtained, and the patio cover or canopy structure shall be permanently attached to the roof deck or building.

(ORD-20-0018 § 6, 2020; ORD-17-0006 § 1(Att. A), 2017; ORD-08-0020 § 3, 2008; ORD-07-0019 § 2, 2007; Ord. C-7633 § 30, 1999; Ord. C-7607 §§ 9, 10, 1999)

Table 31-2B
Residential Densities For Multi-family Districts

The density allowed shall be that provided in the row corresponding to the site width and area. If the site width and area are in ranges located in different rows, then the higher of the two (2) densities is allowed.

District	Site Area (Sq. Ft.)	Site Width (Ft.)	Permitted Density Sq. Ft. of Site Area Per Unit
R-3-T	0—3,200	0—25	1 unit per lot
	3,201—15,000	26—120	1 unit per 3,000 sq. ft.
	15,001 or more	121 or more	1 unit per 2,400 sq. ft.
R-4-R	0—3,200	0—25	1 unit per lot
	3,201—15,000	26—120	1 unit per 1,500 sq. ft.
	15,001 or more	121 or more	1 unit per 1,450 sq. ft.
R-4-N	0—3,200	0—25	1 unit per lot
	3,201—15,000	26—120	1 unit per 1,500 sq. ft.
	15,001—22,500	121—180	1 unit per 1,200 sq. ft.
	22,501 or more	181 or more	1 unit per 975 sq. ft.
R-4-H	0—3,200	0—25	1 unit per lot
	3,201—15,000	26—120	1 unit per 1,500 sq. ft.
	15,001—22,500	121—180	1 unit per 1,200 sq. ft.
	22,501 or more	181 or more	See Table 31.3A
R-4-U	0—3,200	0—25	1 unit per lot
	3,201—15,000	26—120	1 unit per 1,500 sq. ft.
	15,001—22,500	121—180	1 unit per 975 sq. ft.
	22,5001—30,000	181—240	1 unit per 500 sq. ft.
	30,001 or more	241 or more	1 unit per 400 sq. ft.
R-4-M	3,100 sq. ft. min.	32 ft. min.	1 unit per lot

A. **Net Lot Area.** All densities are calculated on the basis of net lot area. This is the existing lot area minus any dedications for public right-of-way (streets or alleys) to meet minimum City standards.

B. **Fractional Densities.** Fractional numbers of units shall not be counted in determining the number of units allowed on the site except that at least one (1) unit shall be allowed on any legal or certified lot.

C. **Narrow or Small Lots.** Any lot which is twenty-five feet (25′) or less in width, or has a lot area of two thousand four hundred (2,400) square feet or less (except in the R-2-I and R-2-S Zones) shall be permitted to contain only one (1) single-family residence.

(ORD-07-0019 § 3, 2007; Ord. C-6895 § 10, 1991; Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.31.210 Minimum lot area and lot width.

The minimum lot area and lot width indicated in Table 31-2A apply only to new subdivisions of land area. They do not apply to new construction on existing lots or to air space subdivisions.

(Ord. C-7663 § 6, 1999: Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.31.215 Yard requirements.

Yards shall be provided for the purpose of providing light, air, pedestrian and vehicular circulation, emergency access and general aesthetic improvements. All lots shall have one (1) front yard and one (1) rear yard, with the exception of through lots, which may have two (2) front yards and no rear yard. All other property lines for all lots shall be considered side property lines.

A. **Measurements.** All yard areas shall be measured as described in Chapter 21.15 (Definitions) of this Title. All yards shall be measured after dedications or reservations for required rights-of-way.

B. **Permitted Structures.** Table 31-3 lists all the structures permitted to be placed in required yard areas provided the minimum setback is maintained. No structures are permitted in a side yard if any structures are in the other side yard except projections into a street side yard. This table does not restrict the location of the listed structures when they are located outside of a required yard area. For garages in yard areas, see Section 21.31.245.

C. **Front Yards.** Front yard depths shall conform to the standards specified in Table 31-2A, unless the following conditions apply to a lot:

1. **Key Lot.** If the lot is a key lot, as defined in Chapter 21.15 (Definitions), and the abutting corner lot is built to the side yard line, then the front yard of the key lot shall be one-half (½) of that required for the nearest interior lot in the same block facing the same street. This is illustrated on Figure 31-1.

2. **Through Lots.**

   a. If the lot is a through lot and adjoining lots face opposite street frontages, then the through lot shall be considered to have two (2) front yards, and the front yards shall have the same required front yard setback as the adjacent zone district (Figure 31-2).

   b. If all lots in a block are through lots fronting in the same direction, then only one (1) front yard shall be required, and the front yard shall be that one from which primary pedestrian access is taken along the entire block (Figure 31-2).

Table 31-3
Permitted Projections and Structures in Required Yards

Structure	Front(a) Maximum Projection Into the Required Front Yard	Side(b) Minimum Distance to Interior Side Property Line	Rear(c) Minimum Distance to Rear Property Line	Street Side(b) Maximum Projection into Street Side Yard
Antennas	Not permitted	Property line	Property line	Not permitted
Architectural protrusions	2 ft. 6 in.	2 ft. 6 in.	3 ft.	2 ft. 6 in. or ½ the required setback, whichever is less
Awnings	2 ft. 6 in.	2 ft. 6 in.	3 ft.	2 ft. 6 in.
Balconies	5 ft. or ½ the required setback, whichever is less	2 ft. 6 in.	3 ft.	5 ft. or ½ the required setback, whichever is less
Single-family				
Multi-family				
Barbecues (not exceed 6 ft. 6 in. in height)	Not permitted	Property line	Property line	Property line
Basement	Not permitted	Same as principal structure	Same as principal structure	Same as principal structure
Bay windows				
R-1 and R-2	2 ft. 6 in.	3 ft.	3 ft.	2 ft. 6 in. or ½ the required setback, whichever is less
R-3 and R-4	2 ft. 6 in.	4 ft.	15 ft.	
Carports	Not permitted	3 ft. to column, 2 ft. 6 in. to eave or roof overhang	3 ft. to column, 2 ft. 6 in. to eave or roof overhang	Not permitted
Chimney (maximum 5 ft. width)	2 ft. 6 in.	2 ft. 6 in.	3 ft.	2 ft. 6 in.
Cornices, eaves, and roof overhangs	2 ft. 6 in.	2 ft. 6 in.	3 ft.	2 ft. 6 in.
Decks above grade with open guard rail (no roof deck)	5 ft.	3 ft.	3 ft.	5 ft. or ½ the required setback, whichever is less
Decks at grade (no higher than 30 in. above grade)	Property line	Property line	Property line	Property line
Detached accessory structures	Not permitted	See Section 21.31.245	See Section 21.31.245	Not permitted
Electrical transformers	(d)	Property line(d)	Property line	(d)
Fences	See Table 43-1	See Table 43-1	See Table 43-1	See Table 43-1
Ground mounted air conditioners	Not permitted	3 ft.	3 ft.	Property line, with screening
Lamppost	Property line	Property line	Property line	Property line
Patio covers	5 ft. or $^1/_2$ the required setback, whichever is less, to column	3 ft. to column, 2 ft. 6 in. to eave or roof overhang	3 ft. to column, 2 ft. 6 in. to eave or roof overhang	5 ft. or $^1/_2$ the required setback, whichever is less
Pool equipment	Not permitted	Property line	Property line	Property line, with screening
Porches	5 ft. or $^1/_2$ the required setback, whichever is less, to column	3 ft. to column, 2 ft. 6 in. to eave or roof overhang	3 ft. to column, 2 ft. 6 in. to eave or roof overhang	5 ft. or $^1/_2$ the required setback, whichever is less
Porte cochere (over circular drive)	Permitted by site plan review only			
Roof deck(c)	Not permitted	Not permitted	3 ft.	Not permitted
Semi-subterranean garage (not to exceed 4 ft. above grade)	Not permitted	See Section 21.31.245	See Section 21.31.245	Not permitted
Solar collector	Not permitted	Property line	Property line	Not permitted
Stairway landings (exterior) (c)	Not permitted more than 2 ft. 6 in. above grade	3 ft.	3 ft.	Not permitted more than 2 ft. 6 in. above grade
Utility enclosures and equipment (includes water heaters, electrical panels, gas, and water meters)	Not permitted	2 ft. 6 in.	3 ft.	Not permitted
Wall returns	See Table 43-1 Fences			
Window-mounted air conditioners	Not permitted	2 ft. 6 in.	3 ft.	Not permitted
Wing walls	Permitted by site plan review only			

Footnotes:

(a) In the R-2-I Zone, permitted structures may extend to within 6 in. of the front property line.

(b) A side property line abutting an alley, public waterway, or public property other than a street shall be considered an interior side property line.

(c) Decks above grade, roof decks, and stairway railing shall not exceed the applicable building/structure height limit (measured to the railing) for the applicable zoning district.

(d) Transformers are allowed in front yard and street side yards only on lots without alleys, and only if the transformer is painted to match the building, is screened by a 3 ft. solid wall or hedge, and is located as far as possible on the lot. The utility company's design for the electric system, including locations and aesthetic treatment, shall be in accordance with the regulations of the Public Utilities Commission of the State of California.

(Ord. C-7663 § 31, 1999: Ord. C-7378 § 5, 1995)

Figure 31-1
FRONT YARD SETBACK EXCEPTION

Section 21.31.215(C)-Key Lot-
If the lot is a key lot and the abutting corner lot is built to the side yard line, then the front yard of the key lot shall be one-half of that required for the nearest interior lot in the same block facing the same street.

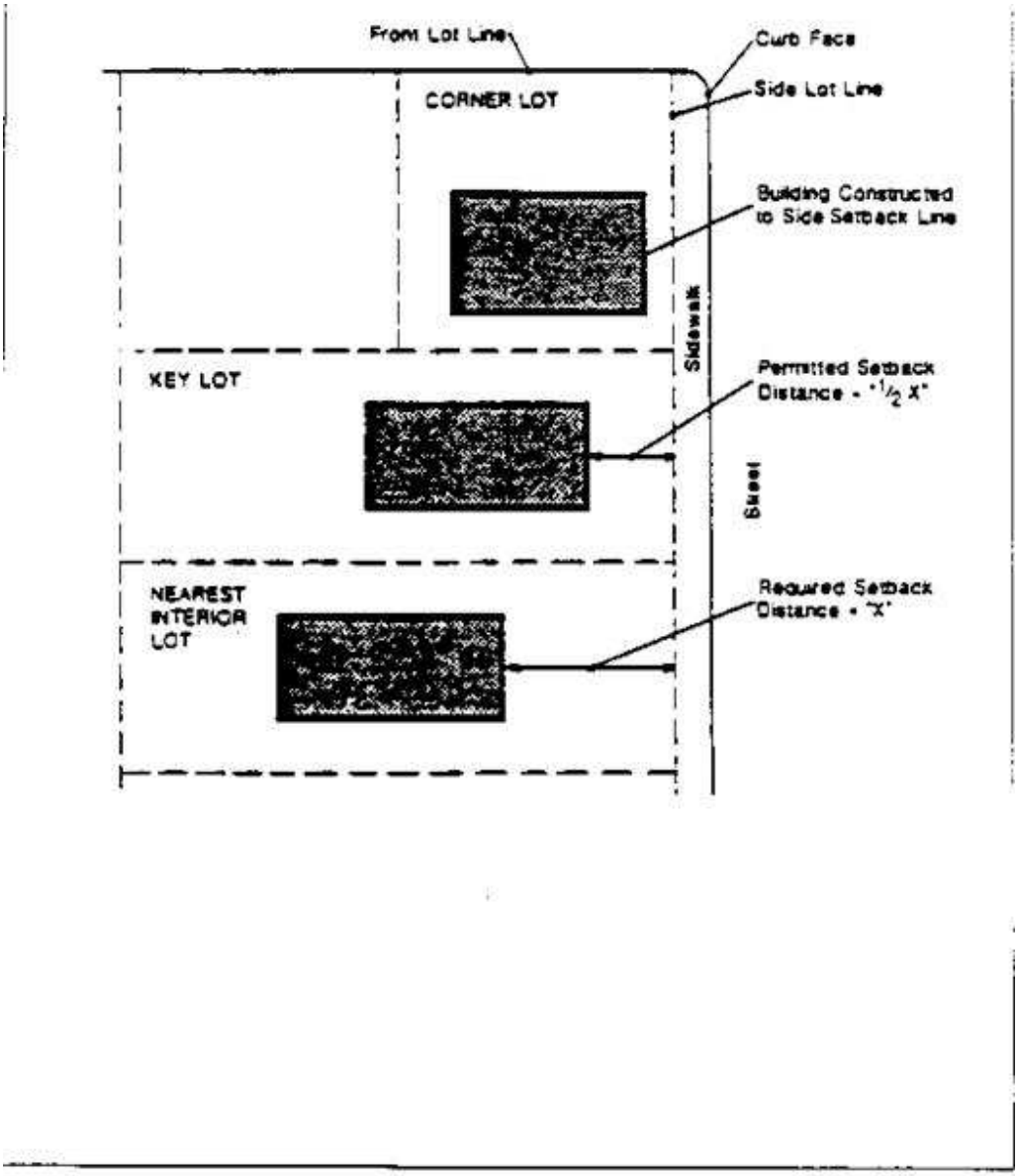
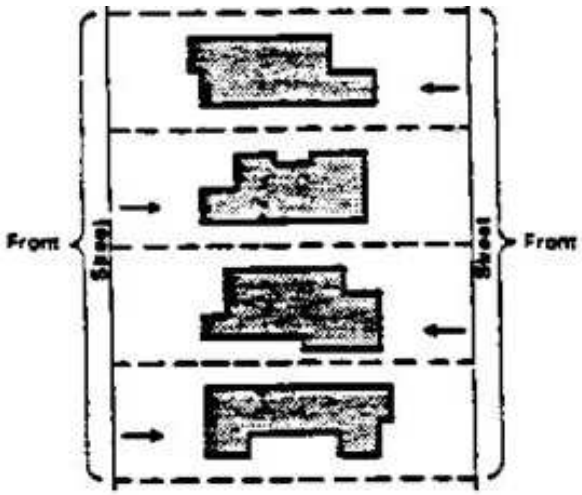
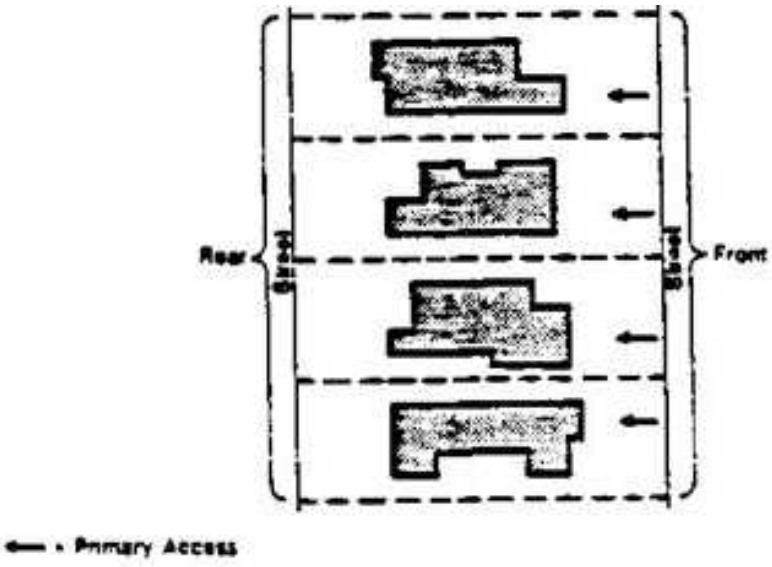


Figure 31-2
FRONT YARDS ON THROUGH LOTS

Section 21.31.215(C)2a—
If the lot is a through lot and adjoining lots face opposite street frontages, then the through lots shall be considered to have two front yards, and the front yards shall have the same required front yard setback as the adjacent zone district



Section 21.31.215(C)2b—Through Lot
If all lots in a block are through lots fronting the same direction, then only one front yard shall be required, and the front yard shall be that one from which primary pedestrian access is taken along the entire block face.



3. **Averaging in R-1-S, R-2-S and R-2-I Districts.** If one or both adjoining lots encroach in the front yard setback in the R-1-S, R-2-S and R-2-I districts, then the front yard setback shall be established by the average setback of adjoining lots. If the subject lot adjoins a vacant lot, street or alley on one side, that side shall be considered a lot with no yard encroachment. Projections shall not be considered encroachments.

4. **Garages.** Garages are subject to the front yard setback requirements specified in Section 21.31.245 of this Chapter.

5. **Parking Prohibited.** Parking in the front yard setback is prohibited, except as provided in Section 21.41.276, recreational vehicles, or Section 21.41.281, vehicle parking in setbacks.

D. **Rear Yards.** Rear yard depths shall conform to the standards specified in Chapter 21.31, Table 31-2, unless the conditions outlined in Section 21.31.215(D) apply. For triangular or gore-shaped lots, the rear lot line shall be established as provided for in the definition of rear lot line in Chapter 21.15 (Definitions) of this Title.

1. Reverse Corner Lots. The rear yard setback for a reversed corner lot shall be the same as the side yard setback.

2. **Shallow Lots.** On lots less than one hundred feet (100') in depth, the following special standards shall apply:

   a. In the R-1-S, R-1-M, R-2-S and R-2-l districts, the rear setback may be reduced to ten percent (10%) of lot depth, but not less than five feet (5');

   b. In the R-1-L and R-2-L districts, the rear setback may be reduced to thirty percent (30%) of lot depth, but not less than fifteen feet (15');

   c. In the R-1-N district, the rear setback may be reduced to ten percent (10%) of lot depth on the first story and thirty percent (30%) on the second story;

   d. In all other zones, the rear setback may be reduced to twenty percent (20%) of lot depth, but not less than ten feet (10').

3. **Buffers.** In R-4-N, R-4-H, R-4-U districts and commercial zones which allow multifamily residential development, on sites adjoining, abutting or adjacent to R-1, R-2, or R-3 districts, a buffer setback facing the R-1, R-2 or R-3 district is required as follows:

   a. The minimum building setback shall be:

BUILDING STORY	**SETBACK***
Two-story or less (excluding mezzanine of the 2nd story and not to exceed 25' in height)	20'
Third story (and 2nd story mezzanine)	30'
Fourth story or more	40'

* This setback is measured from the property line or from the centerline of the abutting alley.

b. If a building facing low-density residential and exceeding twenty-five feet (25') in height and fifty feet (50') in length, at least one-half (1/2) of such building facade shall be setback forty feet (40') from the property line.

c. Within the required setback area, a five foot (5') wide planter strip containing a solid screen of trees planted ten feet (10') or closer on center shall be provided along the property line.

d. No continuous building wall shall extend eighty-four feet (84') in length without recess of the building. This recess shall be at least ten feet (10') in each dimension.

E. **Side Yards.** Side yards shall be required as set forth in Subsection 21.31.215.E, provided that:

1. **Zero Side Yard.** One (1) zero side yard is permitted in the R-1-M, R-1-T, and R-3-T districts, subject to the following provisions:

a. The side yard opposite the zero side yard shall be equal to or greater than twice the required width of an individual side yard for the zone;

b. Any structure on the property adjoining the zero side yard shall not be less than eight feet (8') from the proposed zero lot line structure.

2. **Double Zero Side Yard.** A double zero side yard is permitted in the R-1-T and R-3-T districts, provided that:

a. No principal use structure on an adjoining lot lies within six feet (6') of any lot line proposed as a zero lot line, unless that structure is also a zero lot line building;

b. A street or alley or private access driveway exists at the rear of the lot; and

c. Not more than one hundred fifty feet (150') of a continuous building is created parallel to the front lot line.

3. **Buffers.** In R-4-N, R-4-H and R-4-U districts and commercial zones which allow multifamily residential development, on sites adjoining, abutting or adjacent to R-1, R-2, or R-3 districts, a buffer setback facing the R-1, R-2 or R-3 district is required as follows:

a. The minimum building setback shall be:

BUILDING STORY	SETBACK*
Two-story or less (excluding Mezzanine of the 2nd story and not to exceed 25' in height)	20'
Third story (and 2nd story mezzanine)	30'
Fourth story or more	40'

* This setback is measured from the property line or from the centerline of the abutting alley.

b. If a building facing low-density residential and exceeding twenty-five feet (25') in height and fifty feet (50') in length, at least one-half (1/2) of such building facade shall be set back forty feet (40') from the property line.

c. Within the required setback area, a five foot wide (5′) planter strip containing a solid screen of trees planted ten feet (10′) or closer shall be provided along the property line.

d. No continuous building wall shall extend eighty-four feet (84′) in length without recess of the building. This recess shall be at least ten feet (10′) in each dimension.

F. **Side Yards on Narrow Lots.** In specific areas of the City, existing lots located in the R-1-N, R-1-M, R-2-N and R-2-A zone districts have widths which are narrower than the required minimum widths indicated in Table 31-2. The following special side yard standards are established for lots less than twenty-seven feet (27′) in width in the R-1-N, R-1-M, R-2-N and R-2-A districts:

1. **Site Plan Review Required.** Any developer proposing to construct a new dwelling unit or an addition greater than four hundred fifty (450) square feet in size to an existing dwelling located on a lot less than twenty-seven feet (27′) in width in the noted zoning districts must have the plans approved through site plan review. The site plan review process shall ensure that such development:

a. Does not reduce light and air to neighboring properties;

b. Minimizes curb cuts and the development of front yard areas with driveways;

c. Minimizes the loss of privacy on adjacent properties;

d. Maximizes the window area from primary rooms facing on the street; and

e. Maintains quality residential development.

2. **Minimum Side Yard.** For development on a narrow lot, the minimum yard area shall be three feet (3′).

3. **Lots With Access From Alley.** If the lot abuts an alley, garage access shall be taken from that alley.

G. A corner cutoff as defined in Section 21.15.660 of this Title, shall be required in all residential districts at all intersections of streets, driveways, or alleys. Nothing shall be erected or allowed to grow within the corner cutoff in such a manner as to impede visibility or accessibility up to eight feet (8') in height. Corner cutoffs shall be a minimum of six feet by six feet (6′ x 6′).

(ORD-19-0028 § 8, 2019; Ord. C-7326 § 9, 1995; Ord. C-7247 §§ 10, 11, 1994; Ord. C-7032 §§ 15—18, 1992; Ord. C-6933 § 15, 1991: Ord. C-6895 § 11, 1991; Ord. C-6822 § 8, 1990: Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.31.220 Height limits.

A. **Measurement.** A measurement of height shall use the definition of height contained in Section 21.15.1330.

B. **Exceptions.** The height limitations specified in Table 31-2A shall apply to all elements and equipment on a building, except as follows:

1. Chimneys and vent pipes shall be allowed to exceed the applicable height limit by two feet (2′) (when required to exceed roof height by the Uniform Building, Plumbing and Mechanical Codes).

2. Flagpoles, when placed on the roof of a building, may exceed the height of the building by ten feet (10′). When placed on the ground, flagpoles shall not exceed sixty feet (60′) in height.

3. Television or radio receiving or transmitting antenna(s) may exceed the applicable height limit according to the provisions contained in Section 21.46.060 (Radio and television antennas).

4. Rooftop solar collectors and associated supporting structures may exceed the applicable height limit only if necessary for the sole purpose of solar collection, not otherwise installed on any occupiable areas of the roof, and consistent with the policies of the City of Long Beach Certified Local Coastal Program.

5. The following rooftop elements and equipment in the R-4 zones may extend up to ten feet (10′) above the building height:

   a. Rooftop stair and elevator penthouse enclosures;

   b. Rooftop heating and air conditioning equipment and ducts; and

   c. Rooftop safety rails, spas, tubs, barbecues, wet bars, patio covers and similar nonportable rooftop amenities.

6. **R-4-H Height Incentive.** In the R-4-H zone, the height limit shall be as shown in Table 31-3A. Both the minimum lot width and the minimum height must be achieved before the density is allowed to exceed the R-4-N density.

   Any densities over R-4-N densities in the R-4-H zone are only allowed in true high-rise buildings utilizing the full high-rise package of features required in the Uniform Building Code.

(ORD-19-0007 § 2, 2019; ORD-16-0028 § 10, 2016; Ord. C-6933 § 17, 1991: Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.31.225 Lot coverage.

Lot coverage shall conform to the standards specified in Table 31-2. The actual garage area up to seven hundred (700) square feet for a single-family dwelling, and all garage area for multi-family dwellings, shall be exempt from lot coverage.

(ORD-19-0028 § 9, 2019; ORD-19-0011 § 5, 2019; Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.31.230 Usable open space.

Usable open space in terms of square feet per dwelling unit shall be provided as indicated in Table 31-2A. In R-3 and R-4 zones, each dwelling unit shall provide fifty percent (50%) of the open space as common open space and fifty percent (50%) as private open space, subject to the following standards. Indoor recreational space may be substituted for common usable open space.

A. **Open Space Dimensions.** Table 31-4 specifies the minimum open space dimensions for both common and private open space areas.

B. **Combining Usable Open Space and Pedestrian Access.** If the total width of the usable open space is eighteen feet (18′) or wider, any pedestrian path incorporated into open space design may be considered usable open space.

C. **Screening of Open Space.** Private usable open space areas shall be screened as specified in Table 31-5.

Table 31-3A
R-4-H Height Incentive

Lot Width	Density	Height Minimum	Height Maximum
0—180	See Table 31-1B		5 stories—(65′)
181—250	140/acre (1/310 SF)	8 stories	14 stories
251—300	175/acre (1/250 SF)	14 stories	17 stories
301—375	215/acre (1/200 SF)	17 stories	20 stories
376+	250/acre (1/175 SF)	20 stories	24 stories

Table 31-4
Usable Open Space Dimensions

Type of Usable Open Space	Minimum Length	Minimum Width	Minimum Height	Minimum Area in Square Feet
1. Common	12′	12′	As specified in UBC for habit-able overhead height	150
2. Private				
R-1 and R-2 zones	5′	5′	Same as above	50
R-3 and R-4	8′	8′	Same as above	80

Abbreviation: UBC—Uniform Building Code

Table 31-5
Screening of Open Space

The Area From Which Open Space Must Be Screened	Screen Height
1. Common open space	4′0″
2. Corridors	4′0″
3. Streets or other public right-of-way	3′0″
4. Units on same level	4′0″
5. Units across interior side yard	4′0″

D. **Recreational Amenities.** Any development shall provide on-site recreational amenities. Such amenities shall include:

1. For projects of twenty-one (21) or more units, a recreation room of three hundred (300) or more square feet, furnished with recreational facilities, a swimming pool, or such other recreational amenities as play equipment or other facilities directed to a specific demographic section of the housing market when judged to be of equivalent value by the Site Plan Review Committee.

2. Adequate planter top area for seating not less than eighteen inches (18″) and not more than twenty-four inches (24″) in height, or equivalent bench seating, shall be provided.

(Ord. C-7550 § 6, 1998; Ord. C-6933 §§ 18, 19, 1991: Ord. C-6822 § 9, 1990; Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.31.235 Floor area ratio.

The maximum ratio of building floor area to lot size shall be as specified in Table 31-2. For calculating residential floor area, the total area within a building shall include stairway and elevators on all floors.

A. **Basements.** Basements and open areas shall not be calculated in residential floor area.

B. **Open Room.** If outdoor roof deck or balcony is enclosed on all sides by parapet, solid railing or building wall greater than three feet, six inches (3′6″) in height, such open area shall be calculated in residential floor area.

C. Garages. The actual garage area up to seven hundred (700) square feet for a single-family dwelling, and all garage area for multi-family dwellings, shall be excluded from the calculation of floor area ratio. GFA above the garage is not excluded.

(ORD-19-0028 § 10, 2019; ORD-19-0011 § 6, 2019; Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.31.240 Privacy standards.

A. **Applicability.** Privacy standards shall apply to all residential development of five (5) units or more requiring site plan review. In applicable cases, the privacy standards shall apply to all residential occupancy areas, as defined by the Uniform Building Code.

B. **Standards.** The privacy standards in Table 31-6 apply to the shortest horizontal distance between the specified window and the specified property line, or to the window or wall of another unit in the same project. Each unit in a project must meet these standards in each room.

C. **Definitions.**

1. The measurements indicated in Table 31-6 are "line-of-sight" measurements from window to window, taken from the middle of the window.

2. The following are considered "blank walls":

   a. Garden walls four feet (4′) or more in height;

   b. Frosted glass, stained glass or similar translucent but nontransparent materials; and

   c. Windows with a lower sill not less than five feet, six inches (5′6″) above the finished floor level.

Table 31-6
Privacy Standards

	On-site				At Property Line			
	Primary Room- Largest Window	**Secondary Room- Largest Window**	**Blank Wall**	**Public Corridor**	**Interior Front**	**Side**	**Rear**	**Street Side**
Primary Room- The largest window-R-3, R-4	45 ft.	30 ft.	20 ft.	8 ft.	Frontyard setback	20 ft.	20 ft.	*
Secondary Room- The largest window-R-3, R-4	30 ft.	15 ft.	15 ft.	0 ft.	Frontyard setback	5 ft.	20 ft.	*
Blank wall- R-3 R-4	20 ft.	15 ft.	5 ft.	0 ft.	Frontyard setback	5 ft.	10 ft.	*

* Fifteen percent of lot width but not less than 10 ft., nor greater than 15 ft.

(Ord. C-7378 § 8, 1995)

3. The primary room means a living room, dining room or family room. Where an open floor area plan combines the living and dining rooms, the living/dining room shall be considered one (1) room.

4. All rooms not defined above as a primary room shall be considered a secondary room.

5. In the case where windows in one (1) room are of equal size, either window may be selected by the builder as the largest window.

D. **Public Corridors.** Public circulation corridors may be located within window-to-window or window-to-wall spacing distances. However, such corridors shall also have a minimum privacy spacing distance from primary and secondary windows as established in Table 31-6.

(Ord. C-7378 § 6, 1995; Ord. C-7032 § 19, 1992; Ord. C-6933 §§ 20, 21, 1991; Ord. C-6822 § 10, 1990; Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.31.242 Minimum courtyard dimensions.

The courtyard provision is intended to create an attractive and comfortable on-site open space area in order to enable residents to enjoy outdoor living and recreational activities. Courtyard designs shall conform to the standards as specified. Exception to the minimum dimension requirement may be granted through the site plan review process only if the Site Plan Review Committee or the Planning Commission finds that the alternative design improves the overall quality of the development and meets the intent of the courtyard provision. Standards are as follows:

A. The minimum dimension (width and depth) of any courtyard shall be equal to the same measurement as the height of the enclosing courtyard building walls (one-to-one ratio), but shall not be required to exceed fifty-five feet (55');

B. The height of the building wall shall be measured from the courtyard elevation to the roof eaves of the enclosing building;

C. The courtyard dimension is a measurement of the usable open space between two (2) building walls, or to a property line. If balconies or corridors project into a courtyard, the dimension shall be measured from the edge of balconies or corridors;

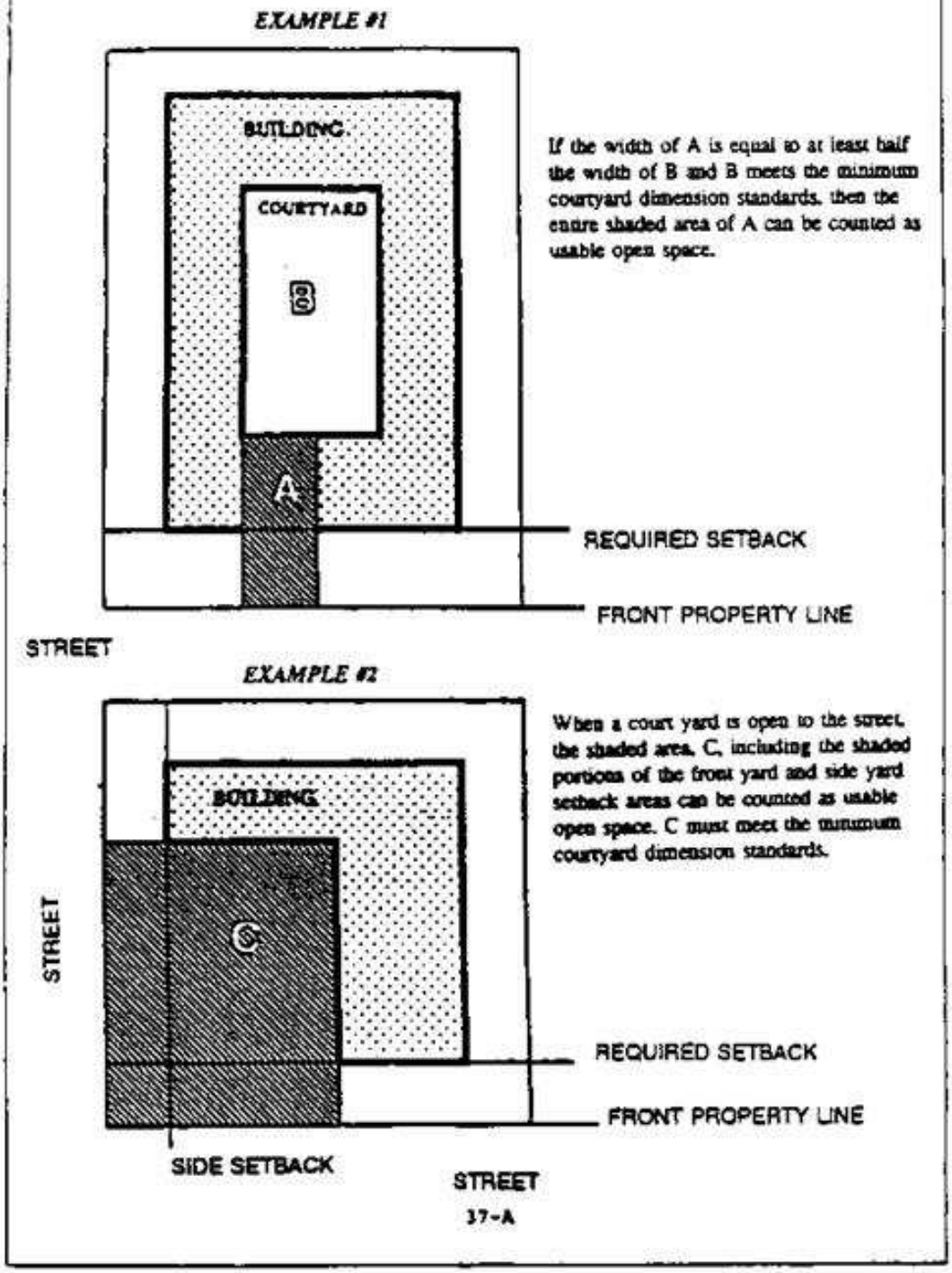
D. Special incentive is provided to encourage courtyards which are visibly open to the street. If fifty percent (50%) of the courtyard width is open to the street, special measurement provision shall apply (See Fig. 21-1);

E. If the enclosing walls terrace back with succeeding stories, the courtyard dimension may be reduced but shall not be less than the lowest enclosing walls; and

F. The courtyard dimensions set forth in this Section apply only to projects requiring site plan review.

(Ord. C-7032 § 20, 1992; Ord. C-6933 § 44, 1991)

FIGURE 21-1


EXAMPLE #1
BUILDING
COURTYARD
B
A
REQUIRED SETBACK
FRONT PROPERTY LINE
STREET
If the width of A is equal to at least half the width of B and B meets the minimum courtyard dimension standards, then the entire shaded area of A can be counted as usable open space.
EXAMPLE #2
BUILDING
C
STREET
REQUIRED SETBACK
FRONT PROPERTY LINE
SIDE SETBACK
STREET
When a court yard is open to the street, the shaded area, C, including the shaded portions of the front yard and side yard setback areas can be counted as usable open space. C must meet the minimum courtyard dimension standards.
17-A

21.31.245 Accessory structures.

Attached and detached accessory structures shall be subject to the development standards indicated in Table 31-3 and as otherwise specified in this Section. Where no specific development standard is indicated, the standards for principal structures shall apply.

A. **Garages.** This Subsection establishes the development standards for the location, height and size of a garage. The required number of parking spaces, parking stall size, turning radius and other parking standards are specified in Chapter 21.41 (Off-Street Parking and Loading Requirements) of this Title.

1. **Setbacks.**

a. If the garage takes direct access from a street, the garage shall be set back twenty feet (20′) from the street property line. If the garage door does not face the street, the setback shall be the same as required for principal use structures.

b. In the rear half of a lot, a garage may be located directly on the rear property line and on one (1) side property line, provided the other side yard is at least three feet (3′) wide (except for permitted projections, see Table 31-3). Otherwise, the standards for setbacks of the principal use structures shall apply. Garages shall not be allowed in street side yard of a corner lot.

c. In the R-1-L Zone, the garage shall be set back fifty feet (50′) from the street property line.

2. **Size.** Garages for single-family residences shall not exceed seven hundred (700) square feet in size and for two-family residences, shall not exceed one thousand one hundred (1,100) square feet in size.

3. **Height.** No garage shall exceed one-story and thirteen feet (13') in height. Mezzanines and lofts shall not be permitted. Attics for storage purposes shall be permitted, as "attic" is defined in Section 21.15.260.

4. **Other Uses in Garage.** Laundry facilities, work benches and similar uses may be located in the garage, provided such uses do not encroach into the required parking area. If such a use or room is separated from the parking area in the garage by a solid wall, the room shall be considered an additional accessory structure and shall conform to applicable standards specified in Subsection 21.31.245.C of this Title.

5. **Garages In R-3 and R-4 Zones.** Garages in R-3 and R-4 Zoning Districts, for projects with three (3) or more units on a lot, shall conform to the standards set forth in Table 31-7. For projects with one (1) or two (2) units on a lot, the standards of this Subsection 21.31.245.A shall apply.

B. Common recreational room or buildings shall be permitted only in multifamily residential developments containing twenty-one (21) or more dwelling units, unless otherwise permitted by site plan review. Such rooms shall be developed in accordance with the following standards:

1. **Setbacks.** Street, front, side and rear yard setbacks shall be the same as those established by Subsection 21.31.245.A.1 for garages in the R-3 and R-4 Districts.

2. **Size.** The size of such rooms shall be limited to five hundred (500) square feet. Larger sizes may be approved through the site plan review process.

C. **Other Attached and Detached Accessory Buildings and Structures.** All other permitted attached and detached accessory buildings shall be developed in accordance with the following standards:

1. **Use.** An attached and detached accessory building shall be used as a workshop for noncommercial hobbies or amusement; for artistic endeavors; for storage; or for other similar purposes customarily related to a residential use. These structures shall not contain bathing or cooking facilities and shall not be utilized as "dwelling units" (as defined in Section 21.15.910);

2. **Location.** An attached or detached accessory building shall be located only in the rear half of a lot. The building may be built directly on the rear property line and on one (1) side property line, provided the other side yard is at least three feet (3′) wide and has no structures or projections located in it and the structure is not located in the street side yard of a corner lot;

3. **Size.** Such buildings shall not exceed three hundred (300) square feet or five percent (5%) of the lot area in size, whichever is smaller;

4. **Height.** No detached accessory building shall exceed one-story and thirteen feet (13') in height. Mezzanines and lofts shall not be permitted. Attics for storage purposes shall be permitted, as "attic" is defined in Section 21.15.260; and

5. **Prohibited in R-1-S, R-1-M, R-2-S and R-2-I Zones.** Detached accessory buildings are prohibited in R-1-S, R-1-M, R-2-S and R-2-I Zones.

D. **Radio and Television Antennas.** Development standards are contained in Chapter 21.45 (Special Development Standards).

E. **Swimming Pools and Spas.** Development standards are contained in Chapter 21.45 (Special Development Standards).

F. **Trash Receptacles.** Trash receptacles shall be provided as follows:

1. **One to Three Units.** Adequate receptacles shall be provided for each unit.

2. **Four or More Units.** Common trash areas shall be provided in sufficient quantity to accommodate all refuse generated. Trash receptacle enclosures shall be provided as indicated in Chapter 21.45 (Special Development Standards).

(ORD-20-0018 §§ 3, 4, 2020; Ord. C-7663 § 7, 1999; Ord. C-7378 § 7, 1995; Ord. C-7326 § 10, 1995; Ord. C-7247 § 12, 1994; Ord. C-7032 §§ 21, 22, 1992; Ord. C-6933 § 22, 1991; Ord. C-6822 § 11, 1990: Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

Table 31-7
Garages in R-3 and R-4 Zone Districts

	Setbacks (a,*):		
Type of Garage	**Front/Side Street**	**Side/Rear(**)**	**Maximum Height**
1. On grade	30′ from street property line(s) and shall be screened by residential use from all street frontages	In the front half of the lot: no projections into the required yard. In the rear half of the lot: 5′ from property line	Projecting into required yard area—13′. Outside of required yard area—same as principal structure
2. Semi-subterranean	Required yard area***	Same as on-grade garage	Not to exceed 4′ above grade***
3. Subterranean	None	None	Below grade

(a) For developments of 1 or 2 units on a lot, refer to Subsection 21.31.245.A.

* For 3 or more units, no vehicle shall be permitted to back into the street.

** Along the interior property lines, a minimum of a 5-foot landscape buffer shall be provided in accordance with Section 21.42.040 (landscaping standards).

*** Through a site plan review process, the maximum height of semi-subterranean garages may be increased.

(ORD-20-0018 § 7, 2020; ORD-19-0028 § 11, 2019; Ord. C-7326 § 11, 1995)

21.31.250 Pedestrian access.

In the R-1-T, R-3 and R-4 zones, the following pedestrian access requirements shall apply:

A. **Front Entry.** Every building shall have a covered front entryway developed in accordance with the following standards:

1. **Orientation.** The front entry shall face the front property line or on a corner lot, the side street property line.

2. **Size.** The entry shall be at least eight-feet-wide (8′).

3. **Walkway.** A decorative paved walkway, separated from and not crossing the driveway, shall be provided between the entry and the public right-of-way.

B. **Elevators.** At least one elevator shall be provided in each multi-family building containing twenty-one (21) or more units, where some of those units have primary accesses only to the third-story or higher stories.

(Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.31.255 Design, treatment and finish.

The following design standards shall apply to all single-family detached and attached dwelling units unless, through site plan review, the Site Plan Review Committee or the Planning Commission finds variation from these standards to be appropriate:

A. **Unit Size.** All single-family dwellings shall be at least sixteen (16) feet wide.

B. **Roof Material.** No single-family dwelling shall have roofing materials with a reflective surface that produces glare.

C. **Siding**. No single-family dwelling shall have siding with a reflective surface that produces glare.

D. **Style.** Buildings in the R-1-T and R-3-T districts shall maintain a design style consistent with the style of the adjoining neighborhood.

E. **Large Single-Family Dwellings.** New single-family dwellings and single-family dwelling rebuild projects in the R-1-L zone that exceed five thousand (5,000) square feet in total size or are within ten percent (10%) of the property's maximum floor area ratio shall comply with the following requirements:

1. Four-sided architecture is required. Building details and design treatments shall be consistent on all building elevations. Bay windows, chimneys, and other projections shall be incorporated in building design for visual and architectural interest.

2. All dwellings shall provide an inset/offset on walls twenty-five (25) feet or greater in length. Wall insets/offsets shall be at least two (2) feet deep and have a span of at least ten (10) feet and extend from grade to eave.

3. Primary facades shall be street facing and entrances shall be obvious and visible. The height of porches or covered entryway features shall not exceed fifteen (15) feet.

4. Second story windows facing an interior side property line shall not be located directly in line with the second story bedroom windows of a neighboring structure.

(ORD-19-0011 § 7, 2019; ORD-17-0006 § 2, 2017; Ord. C-7550 § 7, 1998: Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.31.260 Reserved.

Editor's note—ORD-19-0028 § 38, adopted Nov. 5, 2010, repealed § 21.31.260 entitled "Distance between buildings," which derived from: Ord. C-7032 § 23, 1992; Ord. C-6684 § 41 (part), 1990; and Ord. C-6533 § 1 (part), 1988.

21.31.265 Mechanical equipment screening.

Except as otherwise specified by this Code or any applicable PD or Specific Plan, all exterior mechanical equipment shall be screened by visually solid screening devices at least as high as the equipment. Equipment to be screened includes, but is not limited to, air conditioning and refrigeration equipment, duct work, heating, plumbing lines, and utility meters and telecommunications equipment pursuant to the requirements of Chapter 21.56. Additional standards shall apply as follows to improve aesthetic qualities and to prevent unauthorized access into a building.

A. **R-4-H, PD Zones.** In the R-4-H and PD zones which allow high-rise development, all rooftop-mounted equipment (except solar collectors, heater and plumbing vents, passive air vents, roof hatches and rain gutters) shall be screened from public view both at grade and from higher buildings. The Director of Planning and Building shall review all screening for compliance with these provisions.

B. **R-4-R, R-4-N, R-4-U and PD Zones.** In the R-4-R, R-4-N and R-4-U zones, and in PD zones planned for low-rise development, all rooftop-mounted mechanical equipment (except solar

collectors, heating and plumbing vents, passive air vents, roof hatches and rain gutters) shall be screened from public view by solid screening devices at least as high as the equipment being screened.

C. **Materials and Design.** Screening materials shall, at a minimum, have evenly distributed openings or perforations not exceeding fifty (50) percent of surface area. All screening devices shall be of a material requiring minimal maintenance. Wood generally shall not be used. All screening devices shall be well integrated into the design of the building through such items as parapet walls, false roofs or equipment rooms. Louvered designs are acceptable if consistent with building design style.

D. **Substitutions.** Well planned, compact, architecturally integrated rooftop equipment may be substituted for screening with the approval of the Director of Planning and Building.

E. **Secured.** All rooftop mechanical equipment shall be secured from unauthorized entry to the satisfaction of the Director of Planning and Building.

F. **Fire Rings.** Rooftop fire rings shall be prohibited in all residential zones.

(ORD-19-0011 § 8, 2019; Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.31.270 Utility meters screening.

All utility meters shall be fully screened from view from a public right-of-way. If enclosed in cabinets visible from public rights-of-way, exterior cabinet surfaces shall be finished in materials matching the primary or accent materials of the building. The utility company's design of the electric system, including locations and aesthetic treatment, shall be in accordance with the regulations of the Public Utilities Commission of the State of California.

(Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.31.275 Undergrounding of utilities.

A. All projects requiring site plan review shall provide for the ability to connect the building to any future undergrounding of utilities that may occur in the block. Such provisions shall include a vacant duct to the appropriate feed point for the underground connection.

B. The utility company's design of the electric system, including locations and aesthetic treatment, shall be in accordance with the regulations of the Public Utilities Commission of the State of California.

C. All projects requiring site plan review shall underground all overhead utility service to the site. In lieu of such undergrounding, the project developer may pay an in-lieu fee to the Department of Public Works for use in undergrounding within the applicable district. Such districts shall be established within one (1) year of the effective date of this Section and separate funds established

for each district. The in-lieu fee shall be established based on the average per-foot cost of undergrounding established by the City Engineer and applied to the linear footage of the project site.

(Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.31.280 Off-street parking and loading requirements.

Parking and loading areas shall be provided as required in Chapter 21.41 (Off-Street Parking and Loading Requirements) of this Title.

(Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.31.285 Landscaping requirements.

All lots in residential districts shall be landscaped as provided for in Chapter 21.42 (Landscaping Standards) of this Title.

(Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.31.290 Fences and garden walls.

Fences and garden walls are permitted accessory structures subject to the development standards contained in Chapter 21.43 (Fences and Garden Walls) of this Title.

(Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.31.295 On-premises signs.

On-site signs are permitted accessory structures subject to the development standards contained in Chapter 21.44 (On-Premises Signs) of this Title.

(Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.31.299 Right-of-way dedications and improvements.

Public rights-of-way shall be reserved, dedicated and improved as provided for in Chapter 21.47 (Dedication, Reservation and Improvement of Public Rights-of-Way) of this Title.

(Ord. C-6684 § 41 (part), 1990: Ord. C-6533 § 1 (part), 1988)

DIVISION III.

PLANNED UNIT DEVELOPMENTS

21.31.300 Residential Planned Unit Development (PUD) district established.

A. The City hereby establishes a residential planned unit development (PUD) zoning district, and associated procedures and development standards.

B. The name of the PUD zoning district shall be Residential, Planned Unit Development district. The zoning symbol shall be "RP" followed by a numerical value indicating dwelling units per acre (DU/ac) for each site (examples: RP-6, RP-12, RP-25, etc.).

(ORD-15-0037, § 4, 2015)

21.31.310 Purpose.

The Residential PUD zoning district is established to achieve the following objectives:

A. Provide greater flexibility and encourage opportunities for innovative residential development through the application of site planning and subdivision techniques not otherwise permitted in the zoning and subdivision regulations;

B. Establish a procedure for development and recycling of larger parcels of land that are unused or underutilized, and reduce or eliminate rigidity that otherwise may prevent these sites from being fully utilized due to the application of traditional development standards intended for typical lots;

C. Encourage creative design and development according to good urban planning principles, with efficient use of land, a mixture of densities, diverse housing opportunities, and on-site community facilities;

D. Encourage integration of urban and natural amenities within developments;

E. Facilitate developments with higher levels of amenities, building design, and quality in internal street layout and access than would occur under traditional residential development standards and subdivision practice on large parcels of land;

F. Encourage opportunities for innovative and sustainable land development techniques that will be given reasonable consideration for approval;

G. Encourage preservation of serviceable existing structures of historic value or cultural merit by providing opportunities to use them imaginatively for purposes other than for which they were originally intended.

(ORD-15-0037, § 4, 2015)

21.31.320 Procedures.

The following procedures are established for application for a PUD.

A. Rezoning. A PUD is a type of residential zoning district. Creation of a PUD shall require a zone change, and application for such by the developer.

B. Site Plan Review. At the time an application for a PUD zone change is submitted, the applicant also shall file an application for Site Plan Review for the development project proposed for said PUD, which shall be considered concurrently with the PUD request. No rezoning to a residential PUD shall be considered without concurrent consideration of the Site Plan Review associated with the requested PUD rezoning.

C. Subdivision Tract Map. As part of any application for a PUD, any land proposed for a PUD shall be subdivided as necessary to create lots suitable for the PUD, and as such shall comply with all applicable requirements of Title 20 (Subdivisions) of the Long Beach Municipal Code, and the Subdivision Map Act (Government Code Section 66410-66413.5).

D. Site. The area of each PUD shall be coterminous with a discrete PUD development site and corresponding Site Plan Review submittal.

E. Approval body. Regardless of whether a Site Plan Review application is subject to staff level or Planning Commission approval, all PUD requests shall require a hearing for review and recommendation of approval or denial by the Planning Commission, followed by a hearing by the City Council to act on the rezoning request and other associated permits.

(ORD-15-0037, § 4, 2015)

21.31.325 Modifications to a PUD.

The following procedures are established for modifications to an approved PUD:

A. Changes to development plans. The issuance of any building permit, demolition permit, grading permit, utility connection, license, or other approval shall require the construction plans to be consistent with the development plan approved for the PUD by the approval body. Changes to any approved PUD shall require City approval, subject to the following procedure:

1. Minor changes before or during PUD construction. The Zoning Administrator may authorize minor changes to an approved development plan before or during construction of the overall PUD project, if the changes are required because of conditions that were unknown at the time the plan was approved, and the zoning administrator determines that the changes are consistent with the standards of this Chapter and the findings made in connection with approval of the PUD.

2. All other changes. Changes to the development plan before or during construction of the overall PUD project, other than the minor changes the Zoning Administrator can approve, shall require review by the Site Plan Review Committee, or Planning Commission, as applicable, under the procedures of Section 21.21.405 (Modification of permits). This includes increases in building height, reductions in setbacks, significant reconfiguration of internal streets or connections to the public right-of-way, or any other items that, in the judgment of the Zoning Administrator, may significantly differ from the substance or intent of the original PUD approval.

B. Future modification of the PUD. After construction of the PUD project is completed, any changes to the PUD (including all structures and other site improvements) shall require City approval, subject to the following procedure:

1. Minor changes. Any requested alteration or modification to structures or site improvements may be administratively approved by the Zoning Administrator if, in the judgment of the Zoning Administrator, the proposed change is minor in nature, and is within the scope and intent of the original PUD approval.

2. All other changes to the PUD. Any other alteration, modification, or expansion of structures or site improvements shall be reviewed by the Site Plan Review Committee, or Planning Commission, as appropriate. The reviewing body may approve or deny the request, and may impose additional conditions of approval as necessary to ensure that any approved change is consistent with the intent and development standards of the original approval for the PUD.

3. Compliance with development standards. In all cases, alterations, modifications or other expansions within the PUD shall comply with the development standards set forth in this Chapter, and as set forth in the specific approval for the PUD. Any request that is not in conformance with these standards shall require application for a Standards Variance, under the procedures established in Chapter 21.25.

(ORD-15-0037, § 4, 2015)

21.31.330 Required Findings.

The Planning Commission and City Council may approve a PUD only when positive findings are made that the project is consistent with the following criteria. In granting such approval, the approval body may impose and enforce any conditions of approval it deems necessary to carry out the purposes of the General Plan and the Zoning Regulations.

A. The PUD will provide a project of high quality design, adhering to good urban planning principles and consistent with the design guidelines of this Chapter, and will make efficient use of the available land;

B. The PUD will provide a higher level of amenities and community facilities to residents than would otherwise be obtained through individual development of similar housing units;

C. The PUD is appropriately sited and integrated into the surrounding urban and natural fabric;

D. The PUD has a fully-integrated, complete internal street system that is functional and considerate of all units within the PUD, and is appropriately connected to the public street system;

E. The PUD provides a high quality of building design, and the architectural theme is well-developed and consistent across the PUD; and

F. The PUD project is in compliance with all City sustainability standards applicable to the size and scope of the development.

(ORD-15-0037, § 4, 2015)

21.31.340 PUD Development Standards.

The following development standards are established for all PUDs, to ensure that each PUD provides a higher level of design quality and on-site improvements than would be obtained through individual lot development of a traditional subdivision. Deviation from these development standards shall require a Standards Variance, under the procedures established in Chapter 21.25. For any other pertinent development standards not set forth in this Section, conformance shall be provided per the relevant provision(s) of the Zoning Regulations. In cases of where the development standard is not specified, or its application is unclear, or the standard appears to conflict with the standards of this Section, the Zoning Administrator shall have the authority to determine the appropriate standard.

A. Minimum PUD site area. A PUD shall contain a minimum contiguous site area of 5 acres. Application for a PUD on a site between 4.5 and 5 acres may be allowed at the discretion of the Zoning Administrator if he/she finds that all other standards set forth herein for PUDs can be satisfactorily met in conformance with the intent of these regulations. However, the approval body acting on the PUD request shall then have the authority to deny the request based on a finding of insufficient area.

B. Internal integration. A PUD is intended to be internally integrated and connected within itself, and the site area shall not be divided by a public street, highway, or freeway, or a railroad right-of-way, or stream, river, or flood control channel.

C. Setbacks, height, and other development standards. Minimum building setbacks, separation between buildings, maximum building height, minimum private open space, lot size, and other development standards shall be provided as set forth in Table 31-8.

D. Street and sidewalk widths. The widths of the streets, sidewalks, alleys, and other rights-of-way and easements shall be provided as required in Chapter 20.08 (Design Standards) and Chapter 21.47 (Dedication, Reservation, and Improvement of Public Rights-of-way), except in cases where waivers from these standards are obtained according to the appropriate procedures specified in Chapter 20.08 and Chapter 21.47, with the goal of providing a design adhering to quality urban planning principles, in conformance with the PUD design standards contained in Section 21.31.350.

E. Minimum unit size and width. Each dwelling unit in a PUD shall have a minimum size of 1,200 square feet of habitable floor area, and a width of at least 16 feet.

F. Minimum common open space. Each PUD shall provide a minimum of fifteen percent of the site area as common usable open space, in functional, active recreation area(s).

G. Parking. Each dwelling unit shall be provided with parking as required in Chapter 21.41 of the Zoning Regulations. One guest parking space shall be provided for each four dwelling units, based on the number of units in the development as a whole. Guest parking spaces may be provided as open parking or on-street parking within the PUD, at the discretion of the approval body, notwithstanding Section 20.08.080 (Private Streets).

H. Detached garages and accessory structures. Detached garages and other detached accessory structures shall be prohibited. This does not include accessory structures in common areas (not individual ownership lots) used for utilities, maintenance, storage, or other accessory purposes to serve the common interest within the PUD.

I. Driveways. Each garage shall be provided with a driveway either twenty (20) feet or more in length, or six (6) feet or less in length.

J. Projections and structures in required yards. Projections and structures in required yard areas shall be permitted as set forth in Table 31-3 of this Chapter, except as otherwise specified in this Division and Table 31-8.

K. Homeowner's Association. Each PUD shall have a Homeowner's Association (HOA), established by Covenants, Conditions & Restrictions (CC&Rs). In addition to any responsibilities specified in the CC&Rs, the HOA shall be responsible for the operation, upkeep, and maintenance of all commonly-owned improvements, and enforcement of all CC&Rs. The approval body (Planning Commission or City Council) shall have the authority to add or modify CC&Rs as necessary to ensure the PUD will comply with these development standards and the design guidelines contained in Section 21.31.350. (ORD-23-0052 §§ 2, 3, 2023; ORD-15-0037 § 4, 2015)

21.31.350 PUD Design Guidelines.

The following design guidelines are established for all PUDs, to provide basic objectives for quality urban design to which each PUD should conform. A PUD's consistency with these design guidelines is relevant to the required findings set forth for PUDs in Section 21.31.330. It is the intent of these design guidelines for each PUD to provide a higher level of quality in architecture, site planning, and amenities than would otherwise be obtained through individual lot development of a traditional subdivision.

A. Landscaping. A PUD should be provided with landscaping as specified in Chapter 21.42 of the Zoning Regulations, and should, for landscaping purposes, be held to the standards for sites located in R-3 or R-4 zoning districts. All landscaping within the PUD should be composed of drought-tolerant, low-water-requirement trees, shrubs, and groundcover. Turf may be used in conformance with the water efficient landscaping requirements of Chapter 21.42 (Landscaping Standards) of the Zoning Regulations.

B. Street widths. Street widths within the PUD should comply with the requirements of Chapter 20.08 and Chapter 21.47 to the extent feasible.

However, streets are encouraged to be the minimum widths allowed by the Fire Department, Building and Safety Bureau, and Public Works Department, provided that the requirements of each reviewing department is met, and that any appropriate waivers of standards are obtained according to the procedures specified in Chapter 20.08 or 21.47, as appropriate. The purpose of this guideline is to encourage site planning that adheres to good urban planning principles, to promote pedestrian- and bicycle-oriented development, and to reduce vehicle speeds within the PUD.

C. Sidewalks. Sidewalks should be provided on both sides of all through or circulatory private roads within a PUD, and should be at least 5 feet wide. Sidewalks also are strongly encouraged on both sides of any interior secondary alleys or drives, at a width of at least 4 feet.

D. Parkways. A PUD should be provided with a landscaped parkway between main interior circulation streets and the sidewalk. The parkway should be wide enough to sustain a mature tree (four feet), and should be landscaped in accordance with Chapter 21.42 of the Zoning Regulations.

E. Guest Parking. Notwithstanding Section 20.08.080 (Private Streets), guest parking should be provided as on-street parking on the internal streets of the PUD, if the streets are privately-owned and maintained. On-street parking by residents should be strongly discouraged, and the PUD's Homeowner's Association (HOA) should provide the necessary enforcement against on-street parking by residents.

F. Pedestrian and bicycle connectivity. Connectivity to and within the PUD for pedestrians and bicycles is strongly encouraged, and should be provided to the greatest extent feasible. Separate pedestrian/bicycle entrances to the PUD should be provided independent of vehicular entrances, especially if the PUD is adjacent to a park, bike path, pedestrian trail, or other public amenity that is not directly accessible from the PUD by motor vehicles.

G. Architecture. A PUD should make use of architecture that is of the highest quality, and gives the PUD a distinct visual identity. Architecture should adhere to a common theme and architectural vocabulary among the PUD's buildings, both private residences and community facilities. The use of interesting, creative, distinctive building materials, elements, and details is strongly encouraged.

H. Exterior edges. The PUD should present attractive exterior edges to the surrounding community, neighborhood, and public rights-of-way. Utility or maintenance structures, storage or utility areas, and uninteresting building elevations, should not be exposed to the public viewshed outside the PUD.

I. Outdoor area for common usable open space. At least fifty percent (50%) of the common usable open space for the PUD should be provided in outdoor areas, rather than indoor community rooms, workout rooms, and the like.

Table 31-8 PUD Building Development Standards

		Notes
Setbacks:		
Front yard	6 ft. from edge of private common street or inner edge of sidewalk, whichever is greater.	See footnote (a)
Interior side yard within the PUD	3 ft. to property line, or zero property line with minimum 6 ft. between buildings.	If a building is built to zero lot line on one side, the other side yard shall be clear of any projections. Also see footnote (a)
Interior rear yard within the PUD		See footnote (a) Buildings and wall openings should be sited to maximize privacy between units.
1st Story	8 ft. between buildings	
2nd Story and above	15 ft. between buildings	
Side or rear yard adjacent to private street within PUD	5 ft. from edge of private common street or inner edge of sidewalk, whichever is greater.	See footnote (a)

Table 31-8 PUD Building Development Standards		
		Notes
Garage		No more than 6 ft. is encouraged. Measured from edge of private common street, or inner edge of sidewalk, whichever is greater.
Front (garage door elevation)	No more than 6 ft., or minimum of 20 ft.	
Sides and rear (elevations w/o garage door)	Same as principal structure.	
Abutting other zoning district (PUD edge not adjacent to right-of-way)	8 ft. to property line.	
Building setback from a public right-of-way adjacent to PUD		Measured from building to PUD property boundary
Local Street	15 ft.	
Neighborhood Connector, Minor Avenue	20 ft.	
Major Avenue, Boulevard and Regional Corridor	30 ft.	
Freeway	100 ft.	
Lot Coverage, Open Space, and FAR:		
Lot Coverage	N/A	
Private Open Space	6% of lot area per unit	Shall comply with the standards of Section 21.31.230.
Floor Area Ratio (FAR)	1.3	A greater FAR may be approved at the discretion of the approval body, if adequate separation between buildings and from other adjoining land uses is provided.
Lot Size:		
Minimum Lot Area	2,400 sq. ft.	
Minimum Lot Width	30 ft.	
Building Height:		
Within 50 ft. of R-1, R-2, or R-3 zoning district	25 ft., 2 stories	Standards and exceptions apply as provided in Section 21.31.220.
Other area within PUD	38 ft., 3 stories	Additional building height and stories may be approved at the discretion of the approval body, if adequate separation between buildings and from other adjoining land uses is provided.

Notes:

a) Front, interior side/rear, and private street side/rear setbacks on irregular corner or gore-shaped lots may deviate from these standards at the discretion of the approval body. (ORD-23-0052 §§ 4, 5, 2023; ORD-15-0037 § 4, 2015)

21.31.360 Additional Land Use Restrictions.

Residential PUDs are intended to be primarily residential in nature. In addition to the restrictions set forth for the RP district in Table 31-1, the land uses in a PUD shall be restricted as follows:

A. Residential uses. Each dwelling unit, whether built as a detached or attached single-family dwelling, or duplex, or triplex, or unit within a multifamily building, is intended to be a traditional one-family dwelling unit (as defined in Section 21.15.930), and all other types of residential uses are prohibited.

B. Accessory Dwelling Units. Accessory dwelling units shall be prohibited in a PUD.

C. Community facilities and parks. Community facilities and parks may be approved as part of the PUD at the time of PUD approval. Changes or additions to these uses after the fact shall require approval from the relevant approval body. (ORD-17-0031 § 8, 2017; ORD-15-0037 § 4, 2015)

CHAPTER 21.32 COMMERCIAL DISTRICTS

21.32.010 Purpose.

The commercial districts are established to create, preserve and enhance areas for a variety of commercial activity. The intent of this Chapter is to assure the compatible and mutually beneficial interaction of commercial uses with residential consumers, industrial suppliers, and the transportation system that ties all of the uses together. (Ord. C-6684 § 42 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.32.020 Districts established.

Twelve (12) commercial districts are established by this Chapter as follows:

A. **Commercial Zoning Districts of General Applicability.**

1. The CO-Office Commercial District permits mixed residential and commercial uses along major arterial routes. This District implements Land Use District No. 8M of the General Plan.

2. The CH-Highway Commercial District preserves and enhances areas for automobile-ori-

ented commercial uses. The District recognizes the need for many commercial uses to have large frontages and high visibility along major highways. This District implements Land Use District No. 8A of the General Plan.

3. The CT-Tourist and Entertainment Commercial District creates, preserves and enhances areas for the development of a major tourist and entertainment industry for the City. The District recognizes that such areas have special requirements for intense and unique uses, transportation linkages, and aesthetically pleasing environments.

B. **Neighborhood Commercial Zoning Districts.** The Neighborhood Commercial Zoning District includes neighborhood-serving centers and corridors that provide small scale, low-intensity uses to meet the daily retail and service needs of surrounding residents. Uses and the scale of development shall be compatible with surrounding residential neighborhoods and shall be designed to promote pedestrian and bicycle access. Scale is determined by the size of adjoining residential uses, the commercial lot size and the commercial street width. Special scale restrictions apply in these districts. There are three (3) types of Neighborhood Commercial Districts:

1. The Neighborhood Pedestrian (CNP) District is oriented towards serving pedestrians and encouraging pedestrian activity by locating buildings along the primary street frontage and parking behind the buildings.

2. The Neighborhood Automobile-Oriented (CNA) District is auto-oriented with buildings set back from the front property line and parking located between the building and the street.

3. The Neighborhood Commercial and Residential (CNR) District is a mixed-use district permitting small scale commercial uses and/or moderate density residential development at R-3-T densities.

C. **Community Commercial Zoning Districts.** The Community Commercial Zoning Districts provide medium scale uses that serve an entire community, including those who arrive by automobile, and which may require buffering to ensure compatibility with adjacent residential neighborhoods. These districts are located on major or minor arterials, located on larger lot sizes and adjoining larger scale residential neighborhood uses or are buffered from smaller scale residential neighborhoods. There are four (4) types of Community Commercial Districts:

1. The Community Automobile-Oriented (CCA) District permits retail and service uses for an entire community including convenience and comparison shopping for goods and associated services.

2. The Community Pedestrian-Oriented (CCP) District permits retail and service uses with a development character intended to encourage pedestrian activity with buildings built to the street property line and parking is to the side or the rear.

3. The Community R-4-R (CCR) District is similar to the Community Auto-Oriented District, but also permits moderate density residential development at R-4-R densities.

4. The Community R-4-N (CCN) District is similar to the Community Auto-Oriented District, but also permits medium density residential development at R-4-N densities.

D. **Regional Commercial Zoning District.** The Regional Commercial District provides for large scale, mixed uses on large sites in activity centers. These sites are located on major arterial streets and regional traffic corridors. There is one (1) type of Regional Commercial Zoning District:

1. The Regional Highway District (CHW) is a commercial use district for mixed scale commercial uses located along major arterial streets and regional traffic corridors. Residential use is not permitted.

E. **Commercial Storage Zoning District.** The Commercial Storage (CS) District encourages storage uses in areas which are particularly difficult to use due to parcel shape, access, adverse environmental conditions, or in areas where parcels are needed to form a buffer from incompatible uses.

(ORD-18-0030 § 7, 2018; Ord. C-7663 § 8, 1999: Ord. C-7047 § 7, 1992: Ord. C-6933 §§ 23, 24, 1991; Ord. C-6684 § 42 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.32.030 Site plan review.

Site plan review shall be required pursuant to Division V of Chapter 21.25 (Specific Procedures).

(Ord. C-7326 § 12, 1995: Ord. C-7047 § 8, 1992: Ord. C-6684 § 42 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.32.035 Adult entertainment business.

Any business considered an "adult Entertainment business" as defined in Section 21.15.110 of this Title shall be subject to special locational standards as indicated in Chapter 21.45 (Special Development Standards).

(ORD-18-0018 § 4, 2018; Ord. C-6684 § 42 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.32.040 Reclassification of district.

Any reference to the CR (Retail Center) and CC (Commercial Corridor) Districts shall be treated as a reference to the CCA District.

(Ord. C-7663 § 9, 1999: Ord. C-6684 § 42 (part), 1990)

DIVISION I.

PERMITTED USES

21.32.110 Permitted uses.

The principal use in all commercial districts shall be commercial, although some districts are intended for mixed commercial and residential uses. Tables 32-0 and 32-1 indicate the classes of uses permitted (Y), not permitted (N), permitted as a conditional use (C), permitted as an administrative use (AP), permitted as an accessory use (A), and permitted as a temporary use (T) in all districts. An asterisk (*) indicates that a use is permitted subject to specific development standards outlined in Chapter 21.45 (Special Development Standards) of this Title.

(ORD-20-0018 § 8, 2020; Ord. C-7663 § 10, 1999: Ord. C-7247 § 13, 1994; Ord. C-7127 § 2, 1993; Ord. C-7047 §§ 9, 10, 1992: Ord. C-6933 § 25, 1991; Ord. C-6895 §§ 12, 13, 1991: Ord. C-6822 § 12, 1990; Ord. C-6684 § 42 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.32.120 Prohibited uses.

Any use not specifically permitted by Section 21.32.110, Tables 32-0 and 32-1, shall be prohibited, and no commercial uses shall be allowed outside of a building unless indicated as an outdoor use in Tables 32-0 and 32-1.

(ORD-20-0018 § 9, 2020; Ord. C-7663 § 11, 1999: Ord. C-7127 § 2, 1993; Ord. C-7047 § 11, 1992: Ord. C-7040 § 1, 1992; Ord. C-6895 § 14, 1991: Ord. C-6684 § 42 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.32.130 Transition between defunct and new commercial zones.

Table 32-1 contains commercial zones adopted by the City Council on October 20, 1992. It is the intent of the City, within a specified period of time, to rezone all commercial properties to the zones in Table 32-1. During the "transitional period," all uses listed in Table 32-1, either permitted by right (Y), by a conditional use permit (C), by an administrative use permit (AP), as an accessory use (A), or as a temporary use (T) shall be permitted in the same manner for properties located in the CO, CH and CT Zones. Uses in the extant areas of CO, CH, and CT zoning on the Zoning Map shall be the same as those permitted in the equivalent zoning districts specified in Table 32-0. For development standards, remaining properties zoned CO, CH, and CT shall be regulated according to Tables 32-2A and 32-3A, and all other applicable provisions of this Title.

(ORD-20-0018 § 10, 2020; Ord. C-7663 § 12, 1999: Ord. C-7326 § 13, 1995; Ord. C-7127 § 7, 1993)

Table 32-0
CO, CH, and CT Uses in other Commercial Districts

Existing Zoning District Uses	New Zoning District Use Equivalents	Notes
CO	CCN	
CH	CHW	
CT	N/A	As of the date of adoption of this table, no areas of CT zoning are extant on the Zoning Map, and no equivalent zoning district is established in this Title.

(ORD-20-0018 § 22, 2020)

Table 32-1
Uses In All Other Commercial Zoning Districts

	Neighborhood			Community				Regional	Other	
Alcoholic Beverage Manufacturing and Accessory Tasting Room	**CNP**	**CNA**	**CNR**	**CCA**	**CCP**	**CCR**	**CCN**	**CHW**	**CS**	
Alcohol Beverage Manufacturing*	Y	Y	Y	Y	Y	Y	Y	Y	Y	*See Section 21.45.114. Alcoholic Beverage Manufacturing and Accessory tasting room uses shall be permitted in all Planned Development (PD) Districts allowing commercial uses, subject to Section 21.45.114.
Accessory Tasting Room*	A	A	A	A	A	A	A	A	A	

Table 32-1
Uses In All Other Commercial Zoning Districts

	Neighborhood			Community				Regional	Other	
Alcoholic Beverage Sales	**CNP**	**CNA**	**CNR**	**CCA**	**CCP**	**CCR**	**CCN**	**CHW**	**CS**	**Note: The concentration of existing ABC licenses and the area crime rate are factors considered in reviewing applications for alcohol sales.**
Off-premises sales within 500 ft. of district allowing residential uses	C	C	C	C	C	C	C	C	N	For alcoholic beverage sales exempted from the CUP process, see Section 21.52.200.1.
Off-premises sales more than 500 ft. from district allowing residential uses	N/A	N/A	N/A	C	C	N/A	N/A	C	N	
On-premises sales within 500 ft. of district allowing residential uses	C	C	C	C	C	C	C	C	N	
On-premises sales more than 500 ft. from district allowing residential uses	N/A	N/A	N/A	C	C	N/A	N/A	C	N	

	Neighborhood			Community				Regional	Other	
Automobile (Vehicle) Uses	**CNP**	**CNA**	**CNR**	**CCA**	**CCP**	**CCR**	**CCN**	**CHW**	**CS**	**Note: All outdoor display, storage, service and repair of vehicles is subject to special standards (see Chapter 21.45).**
Auto detailing	A	A	A	A	A	A	A	A	C	Accessory to an auto related use such as auto repair or car wash. Mobile businesses prohibited.
Auto detailing (with hand held machines only)	AP	AP	AP	Y	Y	Y	Y	Y	C	Mobile businesses prohibited.
Car wash	N	N	N	C	C	C	C	AP	C	
Diesel fuel sales	N	N	N	AP	AP	AP	AP	AP	N	See Section 21.52.222.
Drive-through facilities	N	C	N	C	C	C	C	C	N	Special standards apply (see Section 21.45.130).
Gasoline sales	N	C	N	Y	Y	Y	Y	Y	N	
General auto repair (bodywork, painting, etc.)	N	N	N	N	N	N	N	C	N	
Limousine service (does not include auto repair)	N	N	N	Y	Y	AP	AP	Y	N	Nonconforming parking rights do not apply (see Section 21.27.070).
Minor auto repair, tune up and lube, smog test	N	N	N	AP	AP	AP	AP	Y	N	
Motorcycle/jet ski sales and repair	N	N	N	AP	AP	N	N	AP	N	See also industrial zones, table 33-1.
Parking service-principal use	C	C	C	Y	C	Y	Y	Y	C	
Recreational vehicle storage	N	N	N	N	N	N	N	N	C	

	Neighborhood			Community				Regional	Other	
Automobile (Vehicle) Uses	**CNP**	**CNA**	**CNR**	**CCA**	**CCP**	**CCR**	**CCN**	**CHW**	**CS**	**Note: All outdoor display, storage, service and repair of vehicles is subject to special standards (see Chapter 21.45).**
Rental agency (does not include repair)	N	N	N	Y	Y	AP	AP	Y	N	Permitted near airport, hotels, etc. See applicable PD zones.
Sales (does not include auto repair)	N	N	N	N	N	N	N	Y	N	
Towing	N	N	N	A	A	A	A	A	A	Accessory to general and minor auto repair.
Vehicle parts (with installation); tire store	N	N	N	AP	AP	AP	AP	AP	N	
Vehicle parts (without installation)	N	AP	N	AP	AP	AP	AP	Y	N	

Table 32-1
Uses In All Other Commercial Zoning Districts

	Neighborhood			Community				Regional	Other	
Billboards	**CNP**	**CNA**	**CNR**	**CCA**	**CCP**	**CCR**	**CCN**	**CHW**	**CS**	
Billboards	N	N	N	N	N	N	N	C	C	Subject to special standards (see Chapter 21.54). Non-freeway-oriented billboards prohibited in CS district.

	Neighborhood			Community				Regional	Other	
Business Office Support	**CNP**	**CNA**	**CNR**	**CCA**	**CCP**	**CCR**	**CCN**	**CHW**	**CS**	
Copy, fax, mail box, or supplies	Y	Y	Y	Y	Y	Y	Y	Y	N	
Equipment sales, rental, or repair	Y	Y	Y	Y	Y	Y	Y	Y	N	Also permitted in industrial zones (see table 33-1).
Offset printing	N	AP	N	AP	N	AP	AP	Y	N	

	Neighborhood			Community			Regional		Other	Additional Regulations
Uses	**CNP**	**CNA**	**CNR**	**CCA**	**CCP**	**CCR**	**CCN**	**CHW**	**CS**	
Entertainment										
Amusement machines (4 or fewer)	A	A	A	A	A	A	A	A	A	See Section 21.51.205 (accessory uses).
Banquet room rental	A	A	A	A	A	A	A	A	N	Accessory to restaurant only (see Section 21.51.215).
Dancing (accessory use)	N	N	N	Y	Y	Y	Y	Y	N	Accessory to restaurant, tavern, club. City council hearing is required for new and transferred business licenses.

Uses	Neighborhood			Community			Regional		Other	Additional Regulations
	CNP	CNA	CNR	CCA	CCP	CCR	CCN	CHW	CS	
Drive-in theater	N	N	N	N	N	N	N	N	N	
Live or movie theater (w/100 fixed seats or less)	Y	Y	Y	AP	Y	AP	AP	Y	N	
Live or movie theater (w/more than 100 fixed seats)	AP	AP	AP	Y	AP	Y	Y	CY	N	
Mock boxing or wrestling	N	N	N	N	N	N	N	Y	N	City council hearing is required for new and transferred business licenses.
Pool tables (up to 3 tables)	A	A	A	A	A	A	A	A	N	Accessory to restaurant, tavern, club (see Section 21.51.260).
Private club, social club, nightclub, pool hall or hall rental within 500 ft. of district allowing residential uses	N	N	N	C	C	C	C	C	C	City council hearing is required for new and transferred business licenses.
Restaurant with entertainment	Y	Y	Y	Y	Y	Y	Y	Y	N	City council hearing is required for new and transferred business licenses.

Table 32-1
Uses In All Other Commercial Zoning Districts

Uses		Neighborhood			Community				Regional	Other	Additional Regulations
		CNP	CNA	CNR	CCA	CCP	CCR	CCN	CHW	CS	
Entertainment (cont'd)											
Other Entertainment Uses											
Indoor Amusement/Entertainment Facility (arcade, bowling alley, computer arcade, escape rooms, laser tag, miniature golf, skating rink, tennis club, virtual reality rooms, etc.)	Up to 6,000 sq. ft. of GFA	AP	AP	AP	Y	Y	Y	Y	Y	N	See Section 21.45.115.5, Section 21.52.203 (arcades) and Section 21.52.220.5 (computer arcades)
	Over 6,000 sq. ft. of GFA	C	C	C	AP	AP	AP	AP	AP	N	Indoor Amusement/Entertainment Facility uses shall be permitted (Y) in the PD-30 Downtown Plan Area (excluding Neighborhood Overlay). In all other Planned Development (PD) Districts or Specific Plans (SP), the Zoning Administrator may determine if a PD or SP, or subarea thereof, allows for an Indoor Amusement/Entertainment Facility use.

Uses	Neighborhood			Community				Regional	Other	Additional Regulations
	CNP	CNA	CNR	CCA	CCP	CCR	CCN	CHW	CS	
Outdoor Amusement/Entertainment Facility (arcade, escape rooms, miniature golf, skating rink, tennis club, etc.)	N	N	N	AP	AP	AP	AP	AP	N	See Section 21.45.115.5, Section 21.52.203 (arcades) and Section 21.52.220.5 (computer arcades) Outdoor Amusement/Entertainment Facility uses shall be permitted (Y) in the PD-30 Downtown Plan Area (excluding Neighborhood Overlay). In all other Planned Development (PD) Districts or Specific Plans (SP), the Zoning Administrator may determine if a PD or SP, or subarea thereof, allows for an Outdoor Amusement/Entertainment Facility use.

	Neighborhood			Community				Regional	Other	
Financial Services	CNP	CNA	CNR	CCA	CCP	CCR	CCN	CHW	CS	
ATM 1. Walk up or free-standing machine on interior of building; walk up machine on exterior of building	Y	Y	Y	Y	Y	Y	Y	Y	N	1., 2. Requires 2 (5 minute) parking spaces for each ATM machine. Spaces must be located within 100 ft. Such spaces may be existing required parking.
2. Freestanding machine, exterior	AP	AP	AP	AP	AP	AP	AP	AP	N	
3. Drive-through facilities	N	C	N	C	C	C	C	C	N	Special standards apply (see Section 21.45.130).
Bank, credit union, savings and loan, commercial and industrial loans	AP	Y	Y	Y	Y	Y	Y	Y	N	Bank, credit union, and savings and loan in the CNP zone subject to standards in Section 21.52.208. *This does not include car title loans or signature loan businesses as a primary use.
Bus token issuance, payment of utility bills, distribution of government checks and food stamps, sale of phone cards	Y	Y	Y	Y	Y	Y	Y	Y	N	

	Neighborhood			Community				Regional	Other	
Car title loans	N	N	N	C	C	C	C	C	N	Car title loan, check cashing, pay day loan and signature loan businesses are subject to standards in Sections 21.45.116 and 21.52.212.
Check cashing	N	N	N	C	C	C	C	C	N	
Money orders, money transfers	Y	Y	Y	Y	Y	Y	Y	Y	N	
Payday loans	N	N	N	C	C	C	C	C	N	
Signature loans	N	N	N	C	C	C	C	C	N	
Escrow, stocks and bonds broker	Y	Y	Y	Y	Y	Y	Y	Y	N	
All financial services not listed	N	N	N	C	C	C	C	C	N	

Table 32-1
Uses In All Other Commercial Zoning Districts

Uses	Neighborhood			Community			Regional		Other	Additional Regulations
	CNP	CNA	CNR	CCA	CCP	CCR	CCN	CHW	CS	
Public and Semi-Public Institutional										
Community Assembly Uses (Accessory Only <25% of GFA)	Y	Y	Y	Y	Y	Y	Y	Y	N	Accessory assembly uses shall comply with applicable regulations for assembly uses, such as parking and building code requirements
Religious assembly uses with 1) up to 2,500 sq. ft. of GFA; and 2) 100 or fewer occupants	Y	Y	Y	Y	Y	Y	Y	Y	N	See Section 21.52.219.8. Religious Assembly Uses shall be permitted (Y) in the PD-30 Downtown Plan Area (excluding Neighborhood Overlay), subject to Section 21.52.219.8.
Religious assembly uses with 1) between 2,501 sq. ft. and 25,000 sq. ft. GFA; or 2) more than 100 occupants	AP	AP	AP	Y	AP	Y	Y	Y	N	
Religious assembly uses with over 25,000 square feet of GFA	C	C	C	AP	AP	AP	AP	AP	N	
Convalescent hospital or home	C	C	C	C	C	AP	AP	AP	N	
Daycare or preschool	Y	Y	Y	Y	Y	Y	Y	Y	C	
Funeral and Mortuary	N	N	N	AP	AP	AP	AP	Y	N	Crematorium only allowed as accessory use subject to conditions of Section 21.52.211.
Hospital	C	C	C	C	C	C	C	C	N	Subject to 21.34.020
Industrial arts trade school or rehabilitation workshop	N	N	N	AP	AP	AP	AP	Y	N	
Parsonage	A	A	A	A	A	A	A	A	N	Accessory to and on the same parcel as associated religious assembly use.
Private elementary or secondary school	N	N	N	C	C	C	C	C	N	Special conditions apply (see Sections 21.52.263 and 21.52.249).
Professional school/business school	N	N	N	Y	Y	Y	Y	Y	N	

Uses	Neighborhood			Community			Regional		Other	Additional Regulations
	CNP	CNA	CNR	CCA	CCP	CCR	CCN	CHW	CS	
Public Library	Y	Y	Y	Y	Y	Y	Y	Y	Y	
Publicly run post-secondary school	Y	Y	Y	Y	Y	Y	Y	Y	Y	Special standards apply (see 21.45.151)
Safe Parking Site	A	A	A	A	A	A	AP/A	AP/A	A	See Section 21.45.163. Allowed only as an accessory use to an existing institutional use where all lots are owned or operated by the same entity.
Social service facility (with food distribution)	N	N	C	N	N	N	C	C	N	Also see industrial and institutional zones.
Social service facility (without food distributions)	AP	AP	AP	AP	AP	AP	Y	Y	N	
Other institutional uses	N	N	N	AP	N	AP	AP	AP	N	
Interim Parks										
Community garden	IP	IP	IP	IP	IP	IP	IP	IP	IP	See Section 21.52.260.
Passive park	Y	Y	Y	Y	Y	Y	Y	Y	Y	See Section 21.45.155.
Playground	IP	IP	IP	IP	IP	IP	IP	IP	IP	See Section 21.52.260.
Recreational park	AP	AP	AP	AP	AP	AP	AP	AP	AP	See Section 21.52.260.
Urban Agriculture Use (1)	Y	Y	Y	Y	Y	Y	Y	Y	Y	See Section 21.52.260.

Table 32-1
Uses In All Other Commercial Zoning Districts

Uses	Neighborhood			Community			Regional		Other	Additional Regulations
	CNP	CNA	CNR	CCA	CCP	CCR	CCN	CHW	CS	
Personal Services										
Basic personal services (barber/beauty shop, diet center, dry cleaner, fortunetelling, locksmith, mailbox rental, nail/manicure shop, repair shop for small appliances or electronic equipment, bicycles, tailoring, shoe repair, tanning salon, or travel agent)	Y	Y	Y	Y	Y	Y	Y	Y	N	
Fitness center/health club, dance/karate studio, fortunetelling	Y	Y	Y	Y	Y	Y	Y	Y	N	Limited to 5,000 square feet in neighborhood zones.
Fitness Facility up to 2,500 sq. ft. of GFA	Y	Y	Y	Y	Y	Y	Y	Y	N	See Section 21.52.232 Limited to 2,500 square feet in neighborhood zones.
Fitness Facility between 2,501 to 25,000 sq. ft. of GFA	AP	AP	AP	Y	AP	Y	Y	Y	N	

Uses	Neighborhood			Community			Regional		Other	Additional Regulations
	CNP	CNA	CNR	CCA	CCP	CCR	CCN	CHW	CS	
Fitness Facility over 25,000 sq. ft. of GFA	N	N	N	C	N	C	C	C	N	
Gun repair shop	AP	AP	AP	AP	AP	AP	AP	Y	N	
House cleaning service	Y	Y	Y	Y	Y	Y	Y	Y	N	
Indoor animal related uses with animal adoption and boarding not exceeding 25% of gross floor area (such as but not limited to animal grooming, veterinary clinic, animal lounge, animal daycare, pet shop)	Y	Y	Y	Y	Y	Y	Y	Y	N	Subject to special development standards for indoor animal adoption and boarding 21.45.133. Such uses shall be permitted in all Planned Development (PD) Districts and Specific Plans (SP) allowing commercial uses including but not limited to land use categories described as professional and personal services, subject to Section 21.45.133.
Indoor animal related uses with animal adoption and boarding exceeding 25% of gross floor area (such as but not limited to animal grooming, veterinary clinic, animal lounge, animal daycare, pet shop)	AP	AP	AP	AP	AP	AP	AP	AP	N	Subject to special development standards for indoor animal adoption and boarding 21.45.133. Such uses shall be permitted in all Planned Development (PD) Districts and Specific Plans (SP) allowing commercial uses including but not limited to land use categories described as professional and personal services, subject to Section 21.45.133.
Laundromat	AP	AP	AP	AP	AP	AP	AP	AP	N	
Laundry (commercial customers)	N	N	N	N	N	N	N	N	N	Permitted in industrial zones only.
Massage Establishment	A	A	A	A	A	A	A	A	A	Accessory use for hotel over one hundred (100) rooms, a physician, chiropractor, health club, beauty salon, nail salon, and the like.
Massage Establishment (Primary Use)	AP	AP	AP	AP	AP	AP	AP	AP	AP	

Uses	Neighborhood			Community			Regional		Other	Additional Regulations
	CNP	CNA	CNR	CCA	CCP	CCR	CCN	CHW	CS	
Outdoor animal daycare	AP	AP	AP	AP	AP	AP	AP	AP	N	Subject to special development standards for outdoor animal daycare, Section 21.45.134. Such uses shall be permitted in all Planned Development (PD) Districts and Specific Plans (SP) allowing commercial uses including but not limited to land use categories described as professional and personal services, subject to Section 21.45.134.
Recycling center	N	N	N	N	N	N	N	N	N	Permitted in industrial zones only.
Recycling collection center for cans and bottles (staff attended)	N	N	N	AP	AP	AP	AP	AP	N	
Recycling containers for cans and bottles	A	A	A	A	A	A	A	A	N	Accessory to a grocery store only (see Section 21.51.265)
Repair shop (stove, refrigerator, upholstery, lawn mowers, etc.)	N	N	N	AP	AP	AP	AP	Y	N	For small appliance repair, see "basic personal services."
Self-storage (indoor only)	N	N	N	N	N	N	N	N	C	
Shoe repair	Y	Y	Y	Y	Y	Y	Y	Y	N	
Shoeshine stand (indoor/outdoor)	A	A	A	A	A	A	A	A	A	Accessory to barber, car wash, grocery, hotel, office, or restaurant use.
Tattoo parlor	Y	Y	Y	Y	Y	Y	Y	Y	N	See Section 21.45.166. Tattoo parlors shall be permitted in all Planned Development (PD) Districts allowing commercial uses, subject to Section 21.45.166.
Termite and pest control	N	N	N	N	N	N	N	C	N	See "miscellaneous storage of hazardous materials".
Veterinary clinic with boarding	N	N	N	C	C	C	C	C	N	See also "basic personal services".
All personal services not listed	AP	AP	AP	AP	AP	AP	AP	AP	N	

	Neighborhood			Community				Regional	Other	
Professional Services	CNP	CNA	CNR	CCA	CCP	CCR	CCN	CHW	CS	
Accounting, advertising, architecture, artist studio, bookkeeping, business headquarters, chiropractic, computer programming, consulting, contracting, dentistry, engineering, insurance, lab testing, law, marketing, medicine, medical offices, urgent care centers, outpatient surgical centers and similar medical uses, photography, psychiatry, psychology, real estate, or tax preparation	Y	Y	Y	Y	Y	Y	Y	Y	N	
Tutoring Center up to 2,500 sq. ft. GFA	Y	Y	Y	Y	Y	Y	Y	Y	N	Permitted in all Planned Development (PD) Districts and Specific Plans (SP) allowing professional services.
Tutoring Center greater than 2,500 sq. ft. GFA	AP	AP	AP	AP	AP	AP	AP	AP	N	See section 21.52.280 Permitted in all Planned Development (PD) Districts and Specific Plans (SP) allowing professional services, subject to an AUP and section 21.52.280
All professional offices not listed	AP	AP	AP	AP	AP	AP	AP	AP	N	

	Neighborhood			Community				Regional	Other	
Residential Uses	**CNP**	**CNA**	**CNR**	**CCA**	**CCP**	**CCR**	**CCN**	**CHW**	**CS**	
Artist studio with residence	AP	AP	AP	AP	AP	AP	AP	AP	N	
Caretaker residence	AP	AP	AP	AP	AP	AP	AP	AP	AP	
Group home (care of 6 or less)	N	N	Y	N	N	Y	Y	Y	Y	
Live-Work Units	Y	Y	Y	Y	Y	Y	Y	Y	N	See Section 21.52.240.5.
Residential care facility (care of 7 or more)	N	N	N	N	N	C	C	N	N	
Residential historic landmark building	*	*	*	*	*	*	*	*	*	See Section 21.52.265.5 for permitted uses and special conditions.
Senior and/or disabled housing	N	N	N	N	N	C	C	N	N	
Single-family or multifamily residential	N	N	Y	N	N	Y	Y	N	N	See Table 33-2 for permitted densities.

	Neighborhood			Community				Regional	Other	
Residential Uses	**CNP**	**CNA**	**CNR**	**CCA**	**CCP**	**CCR**	**CCN**	**CHW**	**CS**	
Special group residence (fraternity and sorority houses, college dormitories, residential care facility convalescent hospitals, senior housing, housing for persons with disabilities, halfway houses, communal housing and military barracks)	N	N	N	N	N	C	C	C	N	
Supportive housing	N	N	Y	N	N	Y	Y	N	N	
Transitional housing	N	N	N	N	C	C	C	C	N	See Section 21.45.153.

Table 32-1
Uses In All Other Commercial Zoning Districts

	Neighborhood			Community				Regional	Other	
Restaurants and Ready-To-Eat Foods	**CNP**	**CNA**	**CNR**	**CCA**	**CCP**	**CCR**	**CCN**	**CHW**	**CS**	
Commissary-standalone	AP	AP	AP	AP	AP	AP	AP	AP	N	See Section 21.52.219.7.5.
Commissary-accessory to restaurant	A	A	A	A	A	A	A	A	N	Accessory to restaurant. (See Section 21.51.225.5)
Mobile food truck/ mobile food facility - at public park	T	T	T	T	T	T	T	T	T	See section 21.53.106.
Mobile food truck/ mobile food facility - on private property	Y	Y	Y	Y	Y	Y	Y	Y	Y	See Section 21.45.133.6.
Outdoor dining	A	A	A	A	A	A	A	A	N	A Coastal Permit and encroachment permit are required for all outdoor dining located on public right-of-way within the City's Coastal Zone.
Restaurants and ready-to-eat foods with drive-through facilities	N	C	N	C	C	C	C	C	N	Special standards apply (see Section 21.45.130).
Restaurant and ready-to-eat foods without drive-through facilities	Y	Y	Y	Y	Y	Y	Y	Y	N	
Vending carts	AP	AP	AP	AP	AP	AP	AP	AP	N	Special standards apply (see Section 21.45.170).

	Neighborhood			Community				Regional	Other	
Retail Services	CNP	CNA	CNR	CCA	CCP	CCR	CCN	CHW	CS	
Adult-Use Cannabis Dispensary	Y	Y	Y	Y	Y	Y	Y	Y	N	Subject to requirements in 5.92

	Neighborhood			Community				Regional	Other	
Adult-Use Cannabis Delivery-Only Dispensary up to 750 sq. ft. of GFA*	Y*	Y*	Y*	Y*	Y*	Y*	Y*	Y*	N	Subject to requirements in 5.92 and special standards in Section 21.45.700. *Allowed only on the 2nd floor and above within the CNP, CNA, CNR, CCP, CCR, and CCN zones.
Adult-Use Cannabis Delivery-Only Dispensary over 750 sq. ft. of GFA*	C*	C*	C*	C*	C*	C*	C*	C*	N	Subject to requirements in 5.92 and special standards in Section 21.45.700. *Allowed only on the 2 nd floor and above within the CNP, CNA, CNR, CCP, CCR, and CCN zones contingent on Conditional Use Permit approval.
Basic retail sales (except uses listed below)	Y	Y	Y	Y	Y	Y	Y	Y	N	Used clothing, antiques, art, books (new and used), coins, collectibles, jewelry, and trading cards are included in "Basic Retail."
Building supply or hardware store with lumber, drywall, or masonry	N	N	N	Y	Y	Y	Y	Y	N	For hardware store without lumber, drywall, or masonry, see "Basic Retail Sales."
Gun shop	AP	AP	AP	AP	AP	AP	AP	Y	N	
Major household appliances (refrig./ stove/ etc.)	N	N	N	Y	Y	Y	Y	Y	N	
Manufacture of products sold on-site	A	A	A	A	A	A	A	A	A	See Section 21.51.240.
Merchandise mall, indoor swap meet	N	N	N	C	C	C	C	C	N	
Outdoor sales events (flea mkts./ swap meet)	N	N	N	C	C	C	C	C	N	
Outdoor vending 1. Flower, plant, fruit, or vegetables in conjunction with sale of related products from a retail store	A	A	A	A	A	A	A	A	N	1. See Section 21.51.255.
2. Food carts	AP	AP	AP	AP	AP	AP	AP	AP	N	2. See Section 21.45.170.
3. Flower cart or news cart	Y	Y	Y	Y	Y	Y	Y	Y	Y	3. See Section 21.45.135.
Pawn shop	N	N	N	C	C	C	C	C	N	
Secondhand store	Y	Y	Y	Y	Y	Y	Y	Y	N	See Section 21.52.270.1. Also see note under "Basic Retail."
Thrift store, used merchandise	AP	AP	AP	AP	AP	AP	AP	Y	N	Also see note under "Basic Retail."
Vending machines	A	A	A	A	A	A	A	A	A	Accessory to existing retail sales. See Section 21.51.295.

	Neighborhood			Community				Regional	Other	
Temporary Lodging										
Bed and breakfast inn	AP	AP	AP	AP	AP	AP	AP	AP	N	
Emergency Shelters	N	N	C	N	N	C	C	Y	N	See Section 21.45.132
Hotel	N	N	N	C	C	C	C	C	N	
Inn	N	N	N	AP	AP	AP	AP	N	N	
Motel	N	N	N	N	N	N	N	C	N	
Temporary Uses										
Carnival, event, fair, trade show, etc.	T	T	T	T	T	T	T	T	T	
Construction trailer	T	T	T	T	T	T	T	T	T	
Temporary Activating Uses	T	T	T	T	T	T	T	T	T	See Section 21.53.115
Transportation and Communication Facilities										
Communication facilities: A. Freestanding/ monopole cellular and personal communication services	C	C	C	C	C	C	C	C	C	See Section 21.52.210.
B. Attached/roof mounted cellular and personal communication services	Y	Y	Y	Y	Y	Y	Y	Y	N	See Section 21.45.115.
C. Electrical distribution station	C	C	C	C	C	C	C	C	N	
Transportation facilities (bus terminals, cab stands, heliports, helistops)	N	N	N	N	N	N	N	C	N	
Wireless telecommunications facilities	C	C	C	C	C	C	C	C	C	See Chapter 21.56
Miscellaneous										
Storage of hazardous materials accessory to principal use (such as pest control)	C	C	C	C	C	C	C	C	N	A conditional use permit is required only if amount of material stored exceeds 55 gal. of liquid, 500 lbs. of solids, 200 cubic ft. of compressed gas or any amount of acutely hazardous material.
Unattended Donation Box	A	A	A	A	A	A	A	A	A	Subject to accessory use standards (see Section 21.51.294). Unattended Donation Box shall be permitted in all Planned Development (PD) Districts and Specific Plan (SP) Districts allowing commercial uses, subject to Section 21.51.294.

All projects within the Coastal Zone are also subject to the Local Coastal Program and provisions as set forth in Chapter 21.25 Division IX. Uses in commercial zoning districts must be consistent with the certified Long Beach Land Use Plan (LUP) and where there may be discrepancies, use limitations in the LUP shall prevail.

Use, operating, and other regulations contained outside of Title 20 and Title 21 are not certified by the California Coastal Commission.

Abbreviations:

Y = Yes (permitted use).

N = Not permitted.

C = Conditional use permit required. For special conditions, see Chapter 21.52.

A = Accessory use. For special development standards, see Chapter 21.51.

AP = Administrative use permit required. For special conditions, see Chapter 21.52.

T = Temporary use subject to provisions contained in Chapter 21.53.

IP = Interim park use permit required. For special conditions, see Chapter 21.52.

Footnotes:

(1) The following alcoholic beverage sales may be exempted from the conditional use permit requirement:

a. Restaurants with alcoholic beverage service only with meals. This generally means any use with a fixed bar is not exempt. A service bar is not considered a fixed bar. A sushi bar, where alcoholic beverages are served at the same bar where meals are served, is considered serving alcoholic beverages only with meal service. A cocktail lounge without a bar, but with primarily service of only hors d'oeuvres and alcoholic beverages is not exempt. Any restaurant with more than thirty percent (30%) of gross sales consisting of alcoholic beverages shall lose its exemption and be required to obtain a conditional use permit to continue to sell alcohol.

b. Florist with accessory sale of alcoholic beverages.

c. Existing legal, nonconforming uses.

(2) All urban agriculture uses, whether by-right or permitted through an Administrative Use Permit, must meet the standards outlined in Section 21.52.260.

(ORD-26-0012 §§ 2—4, 2026; ORD-24-0025 § 4, 2024; ORD-21-0028 § 2, 2021; ORD-20-0040 § 1, 2020; ORD-20-0026 §§ 10—12, 2020; ORD-20-0025 §§ 5, 6, 2020; ORD-20-0018 §§ 13, 14, 2020; ORD-19-0028 §§ 13—15, 2019; ORD-19-0016 §§ 2—4, 2019; ORD-18-0030 § 6(Exh. A), 2018; ORD-18-0025 § 10(Exh. B), 2018; ORD-18-0018 § 5, 2018; ORD-18-0015 § 2(Exh. B), 2018; ORD-18-0013 § 2(Exh. A), 2018; ORD-18-0003(Emerg.) § 1(Exh. A), 2018; ORD-17-0024 § 2(Exh. B), 2017; ORD. 15-0019 §§ 1, 2, 2015; ORD-15-0010 § 1, 2015; ORD-13-0025 § 2(Exh. A), 2013; ORD-13-0018 § 3(Exh. A), 2013; ORD-13-0022 § 2, 2013; ORD-13-0008 § 1, 2013; ORD-12-0006 § 3, 2012; ORD-11-0011 § 2(Exh. B), 2011; ORD-07-0044 § 1, 2007; Ord. C-7904 §§ 2, 3, 2004; Ord. C-7881 § 2, 2003; Ord. C-7776 § 8, 2001; Ord. C-7729 §§ 4, 5, 2001; Ord. C-7663 § 42, 1999)

Editor's note—ORD-20-0018 § 25, adopted May 19, 2020, repealed Table 32-1A, which derived from: ORD-18-0013 § 3(Exh. B), 2018; ORD-17-0024 § 3(Exh. C), 2017; ORD. 15-0019 §§ 3, 4, 2015; ORD-13-0025 § 3(Exh. B), 2013; ORD-13-0018 § 4(Exh. B), 2013; ORD-11-0011 § 3(Exh. C), 2011; Ord. C-7663 § 32, 1999; Ord. C-7399 §§ 4, 5, 1996; and Ord. C-7378 §§ 9, 10, 1995.

DIVISION II.

DEVELOPMENT STANDARDS

21.32.200 General provisions.

A. **General Standards.** Sections 21.32.205 through 21.32.270 indicate the development standards applicable to all uses in the commercial districts. These standards shall be the standards for construction.

B. **Additional Standards For Residential Uses.** Section 21.32.235 outlines additional development standards applicable to residential uses in commercial districts.

C. **Additional Standards.** Section 21.32.240 contains additional development standards for the CNP, CNA, and CNR Districts.

(Ord. C-7663 § 13, 1999; Ord. C-7047 § 12, 1992; Ord. C-6684 § 42 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.32.205 Lot size.

Tables 32-2 and 32-2A indicate the minimum lot size requirements. These requirements apply only to a new subdivision of existing parcels.

(Ord. C-7663 § 14, 1999: Ord. C-6933 § 26, 1991; Ord. C-6684 § 42 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.32.210 Building height.

The height of all buildings shall be limited as indicated in Tables 32-2 and 32-2A.

(Ord. C-7663 § 15, 1999: Ord. C-7247 § 14, 1994; Ord. C-7047 § 13, 1992: Ord. C-6933 § 27, 1991: Ord. C-6684 § 42 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.32.220 Yards.

The yard areas indicated in Subsections 21.32.220.A through 21.32.220.D shall be clear of all structures from the ground to the sky (except as otherwise permitted) and shall be landscaped and maintained in a neat and healthy condition according to the landscaping provisions of this Title.

Table 32-2
Commercial Development Standards

Required Yard Areas Between Buildings And Property Lines									
	CNP	CNA	CNR	CCA	CCP	CCR	CCN	CHW	CS
Front street (a)	0	10	0 or 8 (e)	10	0	15	15	10	15
Side street (a)	0	5	0 or 5 (e)	10	0	10	10	10	15
Adjacent to side yard of residential district (b)	10 feet								
Adjacent to rear yard of residential district (b)(d)	20 feet								
Adjacent to nonresidential district (b)(c)	5 feet								
Required Yard Areas Between Parking And Property Lines									
	CNP	CNA	CNR	CCA	CCP	CCR	CCN	CHW	CS
Front street (a)	30	10	30	10	10	15	15	6	6
Side street (a)	6	6	6	6	6	10	10	6	6
Alley (b)	14 feet								
Adjacent to residential district	5 feet								
Adjacent to nonresidential district	0	5 feet							0
Other Development Standards									
	CNP	CNA	CNR	CCA	CCP	CCR	CCN	CHW	CS
Minimum lot size	5,000 square feet			10,000 square feet				20,000 square feet	10,000 square feet
Maximum building ht. (f)(g)	28 feet, 2 stories						38 feet, 3 stories	28 feet, 2 stories	28 feet

Maximum flagpole ht.	25 feet

(a) In all cases, minimum setback of 10 ft. from curb face.

(b) Measured from centerline of alley.

(c) Setback may be reduced to 0 ft. if the structure is attached to a building abutting on lot or if no building on an abutting lot is within 5 ft. of property line.

(d) Setback may be reduced to 10 ft. for a single-story commercial building through site plan review.

(e) No setback is required for commercial or residential over ground floor commercial; an 8 ft. front street setback is required for ground-floor residential, and 5 ft. side street setback is required for ground-floor residential.

(f) An accessory structure is limited to 15 ft. in height.

(g) Elevator and mechanical equipment penthouses shall not be included in the measurement of height for commercial buildings.

(h) Rooftop solar collectors and associated supporting structures may exceed the applicable height limit only if necessary for the sole purpose of solar collection, and not otherwise installed on any occupiable areas of the roof, and when located in the coastal zone, public views of the beach, bay, or ocean (as identified in the certified Local Coastal Program) are not adversely impacted.

(ORD-21-0028 § 3, 2021; ORD-19-0028 § 16, 2019; Ord. C-7729 § 7, 2001; Ord. C-7663 § 42, 1999)

Table 32-2A
Commercial Development Standards

Development Standard	CO	CH	CT
Maximum building height (a)(h)	40 ft. (b)	40 ft.	60 ft. (b)
Maximum flagpole height	25 ft. (c)	25 ft.	60 ft.
Minimum lot size	20,000 sf	10,000 sf	20,000 sf
Setback (building)—front street (d)	15 ft.	10 ft.	0 ft.
Setback (building)—side street (d)	15 ft.	10 ft.	5 ft.
Setback (building)—adjacent to side yard of residential district (e)	10 ft.	10 ft.	10 ft.
Setback (building)—adjacent to rear yard of residential district (e)	20 ft.	20 ft.	20 ft.
Setback (building)—adjacent to commercial or industrial district (e)	5 ft.	5 ft.	5 ft. (g)
Setback (parking)—front street (d)	30 ft. (f)	5 ft.	30 ft. (f)
Setback (parking)—side street (d)	15 ft.	5 ft.	5 ft.
Setback (parking)—alley (e)	14 ft.	14 ft.	14 ft.
Setback (parking)—adjacent to residential district (e)	5 ft.	5 ft.	5 ft.
Setback (parking)—adjacent to nonresidential district	5 ft.	3 ft.	0 ft.

(a) An accessory structure is limited to 15 ft. in height.

(b) High-rise overlay applicable at appropriate locations.

(c) In a high-rise overlay zone, no flagpole shall exceed 60 ft. in height.

(d) In all cases, minimum setback of 10 ft. from curb face.

(e) Measured from centerline of alley. Special setback requirements apply to all residential development in a commercial district.

(f) This setback shall apply to the ground floor only.

(g) Setback may be reduced to 0 ft. if the structure is attached to a building abutting on lot or if no building on an abutting lot is within 5 ft. of property line.

(h) Elevator and mechanical equipment penthouses shall not be included in the measurement of height for commercial buildings.

(i) Rooftop solar collectors and associated supporting structures may exceed the applicable height limit only if necessary for the sole purpose of solar collection, and not otherwise installed on any occupiable areas of the roof, and when located in the coastal zone, public views of the beach, bay, or ocean (as identified in the certified Local Coastal Program) are not adversely impacted.

(ORD-21-0028 § 4, 2021; ORD-19-0028 § 17, 2019; Ord. C-7729 § 8, 2001; Ord. C-7663 § 32, 1999)

Table 32-3
Development Standards
Residential Uses In Commercial Districts

Standard	CNR	CCR	CCN
Density	Same as R-3-T Zone	Same as R-4-R Zone	Same as R-4-N Zone
Building height	As per Table 32-2		
Setbacks	As per Table 32-2		
Lot coverage	N/A		
Permitted location within building	No restrictions		
Usable open space and privacy	Same as R-3-T Zone	Same as R-4-R Zone	Same as R-4-N Zone
Parking and loading	As per Chapter 21.41		
Other standards	Same as R-3-T Zone	Same as R-4-R Zone	Same as R-4-N Zone
Garages	Garages in nonresidential zoning districts shall conform to the applicable development standards established for parking spaces as shown on Table 32-2.		
Accessory buildings	Attached or detached accessory buildings in nonresidential districts may be located anywhere on a lot except within a required street front setback area. All Other standards shall be the same as required for principal structures in the zoning district.		

(Ord. C-7663 § 42, 1999)

Table 32-3A
Development Standards
Residential Uses In Commercial Districts

Standard	CO	CT
Density	Same as R-4-N Zone	
Building height	As per Table 32-2A	
Setbacks	As per Tables 32-2 and 32-2A	
Lot coverage	N/A	
Permitted location within building	No restriction	
Usable open space and privacy	Same as R-4-N Zone	
Parking and loading	As per Chapter 21.41	

Standard	CO	CT
Other standards	Same as R-4-N Zone	

(Ord. C-7663 § 32, 1999)

A. Required. Yard areas shall be provided as indicated in Tables 32-2 and 32-2A.

B. Corner Cutoffs. Corner cutoffs, as defined in Section 21.15.660 of this Title, shall be required in all commercial districts at all intersecting streets, driveways or alleys. Nothing shall be erected or allowed to grow within the corner cutoff in such a manner which impedes access or visibility up to eight feet (8′) in height. Required corner cutoffs shall be a minimum of six feet by six feet (6′ x 6′).

C. Permitted Structures. No structures are permitted in required yards, except:

1. Signs, as specified in the Chapter relating to on-premises signs (Chapter 21.44);

2. Outdoor dining;

3. Structures allowed in Table 31-3 (structures in required yards, residential districts);

4. Vehicle parking as allowed by Table 32-2 or 32-2A;

5. Vehicle loading in street frontage setbacks as provided in Section 21.41.310; and

6. Awnings as allowed by the Uniform Building Code.

D. Required Landscaping. All required yard areas, except yards abutting alleys and yards used for outdoor dining, shall contain an area not less than five feet (5') in width planted with trees, shrubs and/or groundcover. The four foot (4') setback area from the abutting alley shall also be landscaped unless such area is used for a driving aisle. For additional landscape requirements, see Chapter 21.42, Landscape Standards.

(ORD-19-0028 § 12, 2019; ORD-10-0031 § 1, 2010; Ord. C-7663 § 16, 1999: Ord. C-7150 § 1, 1993; Ord. C-7127 § 3, 1993; Ord. C-7047 §§ 14, 15, 16, 17, 1992; Ord. C-6933 § 28, 1991; Ord. C-6822 §§ 13, 14, 1990: Ord. C-6684 § 42 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.32.225 Screening required.

A. **General.** The following required screening shall apply in all commercial districts:

1. **Open Storage.** Open storage shall be prohibited. Certain merchandise is permitted to be displayed outdoors for sale or rent as indicated in Tables 32-0 and 32-1.

2. **Parking Lots.** All parking lots shall be screened as provided for in Section 21.41.266 and Chapter 21.42.

3. **Adjacent To Residential Districts.** All commercial uses adjoining or abutting a residential district shall be screened by a solid fence or wall not less than six feet, six inches (6′6″) in height, except in the front yard of the residential lot, where the fence or wall shall be three feet (3′) in height.

4. **Parking Structures.** All sides of a parking structure abutting a public street shall be screened by trees, vines or other decorative screening approved by the Director of Development Services. See Chapter 21.42 for additional requirements.

B. **Mechanical Equipment on Rooftops.** The City recognizes that mechanical equipment on rooftops can be unattractive and can provide areas for unsecured entry into buildings. Therefore, the following restrictions shall be required to improve the aesthetic quality of the City and the security of each building. These restrictions shall apply in all commercial zoning districts within the City.

1. **Required.** In all commercial zones, rooftop mechanical equipment, except solar collectors and rain gutters, shall be screened on all sides by screening not less than the height of the equipment being screened. In the high rise overlay and planned development districts, such equipment shall also be screened from view from higher buildings in the zone to the satisfaction of the Director of Planning and Building.

2. **Secured.** All rooftop mechanical equipment shall be secured from unauthorized entry to the satisfaction of the Director of Planning and Building.

3. **Materials.** All rooftop mechanical equipment screening devices shall be of a material requiring a low degree of maintenance. Wood shall generally not be utilized unless it can be shown that proper maintenance will occur. All screening devices shall be well integrated into the design of the building through such items as parapet walls continuous with the walls of the structure, false roofs, or equipment rooms. Louvered designs are acceptable if consistent with the building design style.

4. **Substitutions.** Well-planned, compact, architecturally integrated rooftop equipment may be substituted for screening with the approval of the Director of Planning and Building.

(ORD-20-0018 § 11, 2020; ORD-10-0031 § 2, 2010; Ord. C-7663 §§ 17, 18, 1999; Ord. C-7047 § 18, 1992: Ord. C-6684 § 42 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.32.230 Design of buildings.

All new and remodeled commercial buildings shall comply with the following design criteria:

A. **Architectural Themes.** Architectural themes, modules and materials present on the main facade of the building shall be used on all other facades.

B. **Change of Material.** Each side of a building must contain a primary and an accent material, and the accent material(s) must cover not less than ten percent (10%) of the facade.

C. **Building Finished Grade.** All new commercial buildings requiring site plan review shall have the first habitable floor level not more than four feet (4′) above grade within the front thirty feet (30′) of the lot.

D. **Special Development Standards For CNP, CNA and CNR Districts.** All new and remodeled commercial buildings in the Neighborhood Commercial zoning districts shall comply with the following design standards. Alternative designs may be approved through Site Plan Review. Site Plan Review is required for exterior remodeling of fifty feet (50′) or more of building frontage.

1. **Exterior Design.** Exterior elevations should be designed with extensive articulation to create visual interest and enhance pedestrian activity along the site. Three dimensional (3-D) elements such as cornices, pilasters and structural bays should be used to break up the facade planes. Ground floor facades should be distinguished from upper floors by cornices, changes of material and/or other architectural devices. Facades wider than fifty feet (50′) should be designed with a modular expression that breaks the facade scale to a width of fifty feet (50′) or less.

2. **Street Wall.** At least two-thirds (2/3) of the front building facade should be located at the front property line. This does not apply in the CNA and CNR districts.

3. **Windows.** Ground floor windows should comprise at least two-thirds (2/3) of the area of the ground floor front facade. Such glass should be clear with an exterior daylight reflectance of not more than eight percent (8%). Ground floor wall sections without windows should be not more than five feet (5′) in width.

4. **Entrances.** Entrances should comprise no more than one-third (1/3) of the width of the ground floor facade. Entrances should be recessed no more than five feet (5′) in depth and should be located no more than fifty feet (50′) apart.

5. **Awnings.** Store front awnings are encouraged. Awnings should be placed below the ground floor cornice (or below the sills of the second story windows if no cornice exists). Awnings should be divided into sections to reflect the major vertical divisions of the facade.

(Ord. C-7729 § 6, 2001: Ord. C-6684 § 42 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.32.235 Residential uses in commercial districts.

All residential development in commercial districts shall comply with the density and development standards indicated in Tables 32-3 and 32-3A. Residential uses shall be permitted in commercial districts as indicated in Tables 32-0 and 32-1.

(ORD-20-0018 § 12, 2020; Ord. C-7326 § 14, 1995; Ord. C-7047 §§ 19—21, 1992: Ord. C-6933 § 29, 1991; Ord. C-6684 § 42 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.32.245 Accessory structures.

A. **Use Restrictions.** The use of accessory buildings and structures shall conform to the requirements of Chapter 21.51 (Accessory Uses) of this Title.

B. **Locations Permitted.** Accessory structures and buildings may be placed anywhere on a lot except within the required street front setback area or as otherwise restricted by the provisions of Chapter 21.45 (Special Development Standards).

C. **Trash Receptacles.** Adequate trash receptacles shall be provided to accommodate all refuse generated on a site. Such receptacles shall conform to the development standards contained in Chapter 21.45 (Special Development Standards).

(Ord. C-7776 § 3, 2001; Ord. C-6684 § 42 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.32.250 Off-street parking and loading.

Off-street parking and loading shall be provided as required by Chapter 21.41 (Parking) of this Title.

(Ord. C-6684 § 42 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.32.255 Landscaping requirements.

Landscaping shall be provided as required by Chapter 21.42 (Landscaping) of this Title.

(Ord. C-6684 § 42 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.32.260 Fences and garden walls.

Fences and garden walls are permitted accessory structures subject to the requirements of Chapter 21.43 (Fences) of this Title.

(Ord. C-6684 § 42 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.32.265 On-premises signs.

On-premises signs are permitted in all districts subject to the requirements of Chapter 21.44 (Signs) of this Title.

(Ord. C-6684 § 42 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.32.270 Right-of-way dedications and improvements.

Public right-of-way shall be dedicated and improved as required by Chapter 21.47 (Street Improvements) of this Title.

(Ord. C-6684 § 42 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.32.275 Undergrounding of utilities.

A. All projects considered new development or rebuilds shall provide for the ability to connect the building to any future undergrounding of utilities that may occur in the block. Such provisions shall include a vacant duct to the appropriate feed point on the public right-of-way for the underground connection.

B. The utility company's design of the electric system, including locations and aesthetic treatment, shall be in accordance with the regulations of the Public Utilities Commission of the State of California.

C. All projects considered new development or rebuilds shall underground all overhead utility service to the site. In lieu of such undergrounding, the project developer may pay an in-lieu fee to the Department of Public Works for use in the undergrounding within the applicable district. Such districts shall be established within one (1) year of the effective date of this Section and separate funds established for each district. The in-lieu fee shall be established by the City Engineer and applied to the linear footage of the project site.

(ORD-19-0011 § 11, 2019)

CHAPTER 21.33 INDUSTRIAL DISTRICTS*

21.33.010 Purpose.

A. The industrial districts are established to preserve and enhance areas for a broad range of industrial and manufacturing uses, recognizing that such uses provide employment, contribute to the City's tax base, and create products needed by consumers and the business community at large.

B. These regulations are intended to accommodate a broad range of current and future industrial and manufacturing uses, and associated technologies, at appropriate locations in the City, provided that safeguards are in place to address environmental and aesthetic concerns; to protect public health and safety; and to ensure that businesses operate within the clearly defined limits of what is allowed.

C. In recognition of the fact that industrial and manufacturing technologies change over time, the City has structured these regulations to address the operating characteristics and processes of industrial uses, rather than specific businesses. Thus, the determination of whether a use is permitted by right or requires discretionary review will necessarily require interpretation based upon the criteria contained in Sections 21.33.020 through 21.33.080. Pursuant to the provisions of Subsection 21.33.060.D of this Chapter 21.33, the Zoning Administrator is authorized to make such interpretation.

(Ord. C-7360 § 3, 1995)

21.33.020 Districts established.

Four (4) industrial districts are established by this Chapter as follows:

A. **Light Industrial (IL).** The Light Industrial (IL) district allows a wide range of industries whose primary operations occur entirely within enclosed structures and which pose limited potential for environmental impacts on neighboring uses. While the emphasis is on industrial, manufacturing, and related uses, small-scale office and commercial uses intended to serve nearby industries and employees are permitted. The performance and development standards are intended to allow a wide range of uses as long as those uses will not adversely impact adjacent uses.

The IL district typically will include clean, non-nuisance industries whose operating characteristics (e.g., noise, hazardous materials, odors, dust, light and glare) are either confined completely

*Note—Prior ordinance history: (Ord. C-6533, 1988; Ord. C-6684, 1990; Ord. C-6895, 1991; Ord. C-7032, 1992; Ord. C-7150, 1993; Ord. C-7247, 1994; Ord. C-7326, 1995.)

within the property or result in limited secondary impacts in terms of traffic, air emissions, and hours of operation. Examples include research and development, flex space (for example, combined office/sales/warehouse/production for one firm), warehousing, small-scale incubator industries, or assembly operations. The buildings housing these uses may be low-scale, older structures within the existing street grid, or modern industrial complexes in park-like settings. These examples are not intended to limit the potential uses within the IL district, but rather to present the range of opportunities available.

B. **Medium Industrial (IM).** The Medium Industrial (IM) district allows a wide range of industries and industrial processes that involve more intensive operations. The district provides areas where most industries may locate, provided they meet the performance standards defined in Section 21.33.090 (Performance Standards). While the emphasis is on industrial, manufacturing, and related uses, office and commercial uses intended to serve nearby industries and employees may be permitted. The performance and development standards are intended to allow a wide range of uses as long as those uses will not impact adjacent uses.

The IM district generally will include industrial and manufacturing operations on a larger scale than those in the IL district. For example, factories with frequent truck traffic and outdoor storage yards might be located in the district. Outdoor storage and limited outdoor activities may be permitted. These examples are intended to represent typical characteristics within the district, not all potential operations.

C. **General Industrial (IG).** The General Industrial (IG) district is considered the City's "industrial sanctuary" district where a wide range of industries that may not be desirable in other districts may locate. The emphasis is on traditionally heavy industrial and manufacturing uses. The IG district is intended to promote an "industrial sanctuary" where land is preserved for industry and manufacturing, and where existing industries are protected from non-industrial users that may object to the operating characteristics of industry. Performance standards still must be met, but the development standards are the minimum necessary to assure safe, functional, and environmentally-sound activities.

The IG district includes uses such as large construction yards with heavy equipment, chemical manufacturing plants, rail yards, and food processing plants. The buildings that house these operations may be older industrial buildings retrofitted to accommodate the use, or new state-of-the-art manufacturing plants. As is the case with all the industrial districts, the focus of the IG district is on the operating characteristics of the use, rather than the particular product created.

D. **Port-Related Industrial (IP).** The Port-Related Industrial (IP) district is characterized predominately by maritime industry and marine resources. Uses in this district are primarily port-related or water dependent, but may also include: water-oriented commercial and recreational facilities primarily serving the general public, and utility installations and rights-of-way. All new uses in the IP district must be consistent with the Port Master Plan.

(Ord. C-7360 § 3, 1995)

21.33.030 Fire Department preliminary review.

The permitting and licensing processes may involve Fire Department review regarding the storage of hazardous materials and other factors which could affect site plans or building designs. The Fire Department offers an informal conceptual site plan review process that provides potential applicants with information regarding such requirements. To ensure such considerations are incorporated into the land use planning and development process at an early stage, applicants are encouraged to contact the Fire Department prior to submitting formal applications to the Department of Planning and Building.

(Ord. C-7360 § 3, 1995)

21.33.040 Site plan review.

Site plan review shall be required pursuant to Chapter 21.25, Division V (Site Plan Review).

(Ord. C-7360 § 3, 1995)

21.33.045 Harbor Department review in IP district.

Projects proposed on property located in the IP district shall be subject to review by the Harbor Department pursuant to Section 18.04.040 of the Municipal Code.

(ORD-19-0032 § 11, 2019; Ord. C-7360 § 3, 1995)

21.33.050 Adult entertainment businesses.

Any business considered an "adult entertainment business," as defined in Section 21.15.110 of this Title, shall be subject to the special locational standards contained in Chapter 21.45 (Special Development Standards).

(ORD-18-0018 § 6, 2018; Ord. C-7360 § 3, 1995)

DIVISION I.

PERMITTED USES

21.33.060 Permitted uses.

A. Table 33-2 shall be used to determine applicable use regulations in the industrial districts. Table 33-2 establishes general classes of uses. For each category, the table indicates whether the class of use is permitted by right (Y); not permitted (N); permitted subject to an administrative use permit (AP) as defined in Chapter 21.25, Division IV (Administrative Use Permits) of this Title; or permitted subject to conditional use permit review (C) pursuant to Chapter 21.25, Division II (Conditional Use Permits) of this Title. All projects within the Coastal Zone are also subject to the Local Coastal Program and provisions as set forth in Chapter 21.25 Division IX.

B. The uses identified in Table 33-2 are more precisely defined by reference to the Standard Industrial Classification (SIC) Manual published by the federal government's Office of Management and Budget. The 1987 SIC Manual, or the most current edition of the manual, as amended, is

incorporated herein by reference. The SIC Manual identifies businesses according to the operating characteristics involved in creating the product (for example, slaughtering, manufacturing pulp, manufacturing industrial inorganic chemicals, petroleum refining) and the effects that these characteristics may have on nearby uses. The actual product created is of secondary importance. For reference purposes, Table 33-1 lists two (2) digit SIC codes and the associated categories of use.

C. The "notes and exceptions" column of the table indicates more precisely the use regulations for specific SIC codes or operating characteristics. The notes and exceptions must be reviewed in conjunction with the other information for that class of use.

D. For uses or activities not specifically identified in Table 33-2, the Zoning Administrator shall have the authority to interpret and assign the appropriate SIC code for that use or activity. The decision of the Zoning Administrator can be appealed to the Planning Commission pursuant to Chapter 21.21, Division V (Appeals) of this Title.

(ORD-20-0025 § 8, 2020; Ord. C-7360 § 3, 1995)

21.33.070 Prohibited uses.

Any use or activity not identified by an SIC code included in Table 33-2, or any use or activity not interpreted by the Zoning Administrator as belonging to a listed SIC code, shall be prohibited.

(Ord. C-7360 § 3, 1995)

21.33.080 Meaning of the Y/AP and Y/C designations.

A. This Section applies to those use categories in Table 33-2 classified as "Y/AP" and "Y/C" within specified industrial districts. "Y/AP" shall mean that the use is permitted by right unless the location criteria contained in Subsection 21.33.080.C apply to the project, in which case administrative use permit (AP) review shall be required pursuant to Chapter 21.25, Division IV of this Title. "Y/C" shall mean a use is permitted by right unless the location criteria contained in Subsection 21.33.080.C apply to the project, in which case conditional use permit (C) review shall be required pursuant to Chapter 21.25, Division II of this Title.

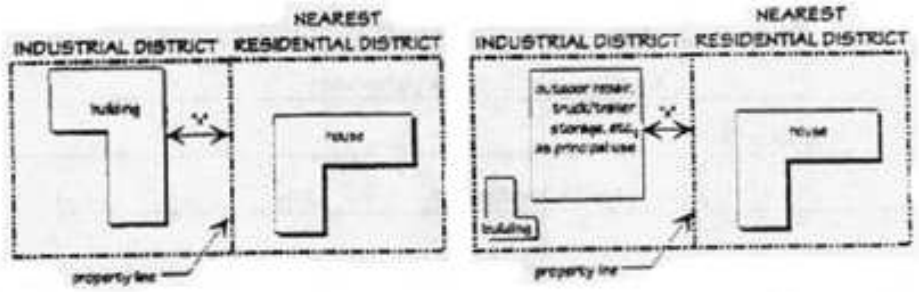
B. The Zoning Administrator shall be authorized to determine whether a use identified in Table 33-2 as "Y/AP" or "Y/C" is permitted by right or requires discretionary review based on the criteria defined in this Section.

C. The location of a proposed industrial use relative to residentially-zoned property shall represent the sole factor for determining whether discretionary review is required pursuant to this Section. If any building housing the principal proposed use in an industrial district, or any outdoor activity which represents the principal use of the property, is located three hundred feet (300′) or less from the nearest residential district (see Figure 33-1), then administrative use permit or conditional use permit review shall be required, as indicated in Table 33-2.

(Ord. C-7360 § 3, 1995)

Figure 33-1

Determination of Distance



If "x" = 300 ft. or less, then discretionary review is required. Distance from building or outdoor use shall be measured to the nearest residential property line.

Table 33-1
Two-Digit SIC Code Groups

SIC Division and Group No.	Classified Businesses and/or Activities
A. Agriculture, Forestry, and Fishing	
01	Agricultural production—crops
02	Agricultural production livestock and animal specialties
07	Agricultural services
08	Forestry
09	Fishing, hunting, and trapping
B. Mining	
10	Metal mining
12	Coal mining
13	Oil and gas extraction
14	Mining and quarrying of nonmetallic minerals, except fuels
C. Construction	
15	Building construction—general contractors and operative builders
16	Heavy construction other than building construction—contractors
17	Construction—special trade contractors
D. Manufacturing	
20	Food and kindred products
21	Tobacco products
22	Textile mill products
23	Apparel and other finished products made from fabrics and similar materials
24	Lumber and wood products, except furniture
25	Furniture and fixtures
26	Paper and allied products
27	Printing, publishing, and allied industries
28	Chemicals and allied products
29	Petroleum refining and related industries
30	Rubber and miscellaneous plastics products
31	Leather and leather products
32	Stone, clay, glass, and concrete products
33	Primary metal industries
34	Fabricated metal products, except machinery and transportation equipment
35	Industrial and commercial machinery and computer equipment
36	Electronic and other electrical equipment and components, except computer equipment
37	Transportation equipment
38	Measuring, analyzing, and controlling instruments; photographic, medical and optical goods; watches and clocks
39	Miscellaneous manufacturing industries

Table 33-1
Two-Digit SIC Code Groups
(Continued)

SIC Division and Group No.	Classified Businesses and/or Activities
E. Transportation, Communications, Electric, Gas, and Sanitary Services	
40	Railroad transportation
41	Local and suburban transit and interurban highway passenger transportation
42	Motor freight transportation and warehousing
43	United States Postal Service
44	Water transportation
45	Transportation by air
46	Pipelines, except natural gas
47	Transportation services
48	Communications
49	Electric, gas, and sanitary services
F. Wholesale Trade	
50	Wholesale trade—durable goods
51	Wholesale trade—nondurable goods
G. Retail Trade	
52	Building materials, hardware, garden supply, and mobile home dealers
53	General merchandise stores
54	Food stores
55	Automotive dealers and gasoline service stations
56	Apparel and accessory stores
57	Home furniture, furnishings, and equipment stores
58	Eating and drinking places
59	Miscellaneous retail
H. Finance, Insurance and Real Estate	
60	Depository institutions
61	Nondepository credit institutions
62	Security and commodity brokers, dealers, exchanges, and services
63	Insurance carriers
64	Insurance agents, brokers, and service
65	Real estate
67	Holding and other investment offices
I. Services	
70	Hotels, rooming houses, camps, and other lodging places
72	Personal services
73	Business services
75	Automotive repair, services, and parking
76	Miscellaneous repair services

Table 33-1
Two-Digit SIC Code Groups
(Continued)

SIC Division and Group No.	Classified Businesses and/or Activities
78	Motion pictures
79	Amusement and recreation services
80	Health services
81	Legal services
82	Educational services
83	Social services
84	Museums, art galleries, and botanical and zoological gardens
86	Membership organizations
87	Engineering, accounting, research, management, and related services
88	Private households
89	Miscellaneous services
J. Public Administration	
91	Executive, legislative, and general government, except finance
92	Justice, public order, and safety
93	Public finance, taxation, and monetary policy
94	Administration of human resource programs
95	Administration of environmental quality and housing programs
96	Administration of economic programs
97	National security and international affairs
K. Nonclassifiable establishments	
99	Nonclassifiable establishments

(Ord. C-7360 § 3, 1995: Ord. C-7326 § 16, 1995)

Table 33-2
Uses In Industrial Districts

Use	IL	IM	IG	IP	*Notes and Exceptions
1. Agriculture And Related Uses (SIC codes 01, 02, 07*)	N	N	C	See Item 10 in this table.	a. Permitted in IL and IM • 0742 (Veterinary Services for Animal Specialties) • 0752 (Animal Specialty Services, Boarding, Kennels, Shelters) • 078 (Landscape and Horticultural Services)
1.1 Urban Agriculture Use	Y	AP	AP	AP	All urban agriculture uses, whether by-right or permitted through an Administrative Use Permit, must meet the standards outlined in Section 21.52.260.

Table 33-2
Uses In Industrial Districts
(Continued)

Use	IL	IM	IG	IP	*Notes and Exceptions
1.2 Cannabis Cultivation	Y	Y	AP	N	
2. Construction-Related Uses (SIC codes 138, 15, 16, 17)					"Limited outdoor accessory storage" means the storage of materials and equipment to be used off-site for construction projects in progress.
2.1 With outdoor storage as principal use	N	Y/AP	Y	See Item 10 in this table.	
2.2 Contractor's office with limited outdoor accessory storage	Y	Y	Y		
3. Food Processing (SIC code 20*)	C	Y/C	Y/C	See Item 10 in this table.	a. Prohibited in IL, IM, and IP, and requires conditional use permit in IG: • 201 (Meat Products) • 2048 (includes slaughtering animals for animal feed) • 2077 (Animal and Marine Fats and Oils) • 2091 (Canned and Cured Seafoods) • 2092 (Fresh or Frozen Seafoods) b. Permitted in IL, IM, and IG: • 205 (Bakery Products)
4. Manufacturing					a. Prohibited in IL, IM, and IP, and requires conditional use permit in IG:
4.1 SIC codes 23, 27, 283, 284, 31*, 36, 38, 39	Y	Y	Y	See Item 10 in this table.	• 261 (Pulp Mills) • 262 (Paper Mills)
4.2 SIC codes 25, 26*, 30	Y/C	Y/C	Y		• 263 (Paperboard Mills) • 281 (Industrial Inorganic Chemicals)
4.3 SIC codes 22, 24, 289*, 32*, 34*, 35	N	C	Y/C		• 282 (Plastics Materials) • 285 (Paints, Varnishes) • 286 (Industrial Organic Chemicals)
4.4 SIC codes 21, 29*, 33, 492*, 4932*	N	N	C		• 287 (Agricultural Chemicals) • 2892 (Explosives)
4.5 SIC code 37 - within enclosed structures only	Y	Y	Y		• 291 (Petroleum Refining) • 311 (Leather Tanning and Finishing) • 324 (Hydraulic Cement)

Table 33-2
Uses In Industrial Districts
(Continued)

Use	IL	IM	IG	IP	*Notes and Exceptions
4. Manufacturing (continued)					
4.6 SIC code 37 - with outdoor storage or operations	C	C	Y/C	See Item 10 in this table.	• 325 (Structural Clay Products) • 327 (Concrete, Gypsum, and Plaster Products) •3292 (Asbestos Products) •348 (Ordinance and Accessories) b. Certain oil and gas extraction and processing are exempt from zoning regulations as provided for in Subsection 21.1O.030.B, and are controlled by Title 12 of the Municipal Code.
5. Transportation-Related Uses (SIC codes 41, 421, 4215, 423, 473, 478)					a. SIC code 45 uses shall require a conditional use permit outside the boundaries of the Long Beach Airport and/or on adjacent properties directly supporting airport operations.
5.1 With no outdoor container storage	C	C	C*		
5.2 With outdoor container storage associated with shipping/trucking/rail	C	C	C*		See Special Development Standards for Trucking terminals and yards. Section 21.45.168
5.3 Air transportation (SIC code 45)	N	N	Y*		
5.4 Helipads	C	C	C	See Item 10	
5.5 Electric, gas, and sanitary services (SIC code 49, except 492 and 4932. Includes refuse transfer stations)	C	C	C		

Table 33-2
Uses In Industrial Districts
(Continued)

Use	IL	IM	IG	IP	*Notes and Exceptions
6. Wholesale Trade (SIC codes 50*, 51*, 422)	Y	Y	Y	See item 10 in this table.	a. Exceptions as specified in item 6.1 of this table b. General Warehousing and Storage under SIC code 4225 is permitted (does not include personal storage or commercial storage/self-storage, including recreational vehicle, and/or miniwarehouse, as defined by Section 21.15.570). Prohibited in IL, IM, and IP, and requires a conditional use permit in IG: • 5015 (motor vehicle parts, used) • 5093 (scrap and waste materials, including retail sales) • 5154 (livestock sales)
6.1 Personal storage, and commercial storage/self-storage, including recreational vehicle, and/or miniwarehouse, as defined by Section 21.15.570 (SIC code 4225*)	N	N	C	N	a. Does not include General Warehousing and Storage under SIC code 4225.
7. Retail Trade				See item 10 in this table for 7 and all items below.	

Use	IL	IM	IG	IP	*Notes and Exceptions
7.1 Eating places without drive-through facilities (SIC code 5812*)	Y	Y	Y		a. Primarily, these uses are intended to serve nearby industries and employees, and the retail's proximity will provide convenience with minimal impact on the retail operations. b. Any business involved in the sale of alcoholic beverages shall be subject to conditional use permit review and shall meet the location requirements contained in Section 21.52.201. The following exceptions do not require a conditional use permit: Restaurants with alcoholic beverage service only with meals, whereby alcoholic beverage sales comprise 30 percent or less of the monthly gross sales of the restaurant. This generally means that any use with a fixed bar is not exempt from the conditional use permit requirement. A service bar is not a fixed bar. A sushi bar where alcoholic beverages are served at the same bar as meals is considered as serving alcoholic beverages only with meals. A cocktail lounge without a bar but with service primarily of hors d'oeuvres and alcoholic beverages shall require a conditional use permit. • Any use located more than 500 ft. from a zone district which allows residential use. • Department store or florist shop with accessory sales of alcoholic beverages. • A grocery store of 20,000 sq. ft. or more with accessory sales of alcoholic beverages. • Existing legal, nonconforming uses. See item 13 in this table for "drinking places." (SIC code 5813).
7.1.1 Commissary - standalone (SIC 5812)	Y	Y	Y		See Section 21.45.125.
7.1.2 Commissary - accessory to restaurant (SIC 5812)	A	A	A		See Section 21.51.225.5.
7.1.3 Mobile food truck/ mobile food facility	Y	Y	Y		See Section 21.45.133.6.
7.2 Eating with drive-through facilities (SIC code 5812*)	C	C	C		See notes for Item 7.1.
7.3 Book and video stores; video rentals (SIC codes 5735, 5942, 7841)	Y	C	C		

Use	IL	IM	IG	IP	*Notes and Exceptions
7.4 All other retail trade (SIC codes 52 through 57, 59)	Y	C	C		c. Pawnshops (included within SIC code 5932) shall require a conditional use permit in all zones. d. Gasoline Service Stations (SIC code 5541) and Fuel Dealers (SIC code 598) shall be permitted in the IG district. e. Sales of firearms in the IL zone shall require a conditional use permit. f. Drive-through facilities in all Industrial Districts require a conditional use permit. Special Standards apply (see Section 21.45.130).
7.5.1 Adult-Use Cannabis Delivery-Only Dispensary up to 750 sq. ft. of GFA	Y	Y	Y		Subject to requirements in 5.92 and special standards in Section 21.45.700.
7.5.2 Adult-Use Cannabis Delivery-Only Dispensary over 750 sq. ft. of GFA	C	C	C		Subject to requirements in 5.92 and special standards in Section 21.45.700.
8. Service-Related Industries					
8.1 Laundry, cleaning and garment services (SIC code 721)	Y	Y	Y	See Item 10 in this table.	a. Primarily, these uses are intended to serve nearby industries and employees, and the services' proximity will provide convenience with minimal impact on the service operations.
8.2 Other personal services (SIC codes 722, 723, 724, 725, 726, 7291)	Y	AP	AP		
8.3 Tattoo and massage parlors	N	N	N		b. Parking lots and structures which are principal uses (SIC code 752) shall be subject to parking lot development standards contained in Chapter 21.41.
8.4 Repair services within enclosed structure (SIC codes 75* and 76)	Y	Y	Y		
8.5 Repair services with outdoor operations (SIC codes 7353, 7359, 75*)	N	Y/C	Y		
8.6 Funeral, mortuary and crematorium (SIC code 7261)	N	AP	AP		Subject to special development standards specified in Section 21.52.211

Table 33-2
Uses In Industrial Districts
(Continued)

Use	IL	IM	IG	IP	*Notes and Exceptions
9. Professional Office and Institutional Uses (SIC codes 60, 61, 62, 63, 64, 65, 66, 73 [except 7353 and 7359], 861, 862, 863, 864, 878* Division J (Public Administration))	Y	AP	AP	See Item 10 in this table.	a. Prohibited in all industrial districts: • 6099 (Functions related to depository banking, not elsewhere classified) • 9223 (Correctional Institutions) • 8744 (Jails, privately operated-correctional facilities, adult privately operated), except a "Community Correctional Re-entry Center," as defined in Section 21.15.602, may be permitted in the IL, IM and IG zone districts pursuant to a conditional use permit as set forth in Chapter 21.52. b. Offices are intended to serve nearby industries and employees. c. Emergency shelters (8322) shall be subject to the special development standards specified in Section 21.45.132. d. Adult-Use Cannabis Businesses subject to Chapter 5.92. e. Drive-through facilities in all Industrial Districts require a conditional use permit. Special standards apply (see Section 21.45.130).
9.1 Emergency shelters (SIC code 8322*)	Y	Y	AP	Y	Special standards apply (see Section 21.45.132).
9.2 Safe parking site	Y	Y	AP/A	A	Allowed only as an accessory use to an existing institutional use where all lots are owned and operated by the same entity. Special standards apply (see Section 21.45.163).
9.3 Supportive housing	AP	AP	AP	N	
9.4 Transitional housing	AP	AP	AP	N	Special standards apply (see Section 21.45.153).

Table 33-2
Uses In Industrial Districts
(Continued)

Use	IL	IM	IG	IP	*Notes and Exceptions
10. Port-Dependent And Support Businesses	See Items 1-9 and 11-14 in this table.	See Items 1-9 and 11-14 in this table.	See Items 1-9 and 11-14 in this table.	Y	• Ancillary Port Facilities—ship building and repair, towboat and salvage operations, bunker barge loading, sportfishing launching, marine research, Coast Guard operations, marine-oriented fire protection, equipment storage for dredging and waterfront construction, oil spill cleanup. • Commercial/Recreational Facilities—water-oriented parks, sightseeing, sportfishing, water skiing, restaurants, hotels, curio shops, marinas, boat sales and manufacturing, charter boat operations, tackle shops, tourist attractions (e.g., Queen Mary), vessel storage. • Federal Use—shipyard and drydock operations, Navy Base and support.
	See Items 1-9 and 11-14 in this table.	See Items 1-9 and 11-14 in this table.	See Items 1-9 and 11-14 in this table.	Y	• Oil and Gas Production—including tankage, processing, drilling, and water injection. • Utilities—installations and rights-of-way, including SCE station on Terminal Island. • Adult-Use Cannabis Businesses (all categories) are prohibited. • Drive-through facilities in all Industrial Districts require a conditional use permit. Special standards apply (see Section 21.45.130).
11. Communications (SIC code 48*)	Y	Y	Y	See Item 10 in this table.	a. Requires conditional use permit in all districts: • 483 (Radio and television broadcasting stations) • Microwave transmission or relay towers • Wireless Telecommunications Facilities (see Chapter 21.56)

Table 33-2
Uses In Industrial Districts
(Continued)

Use	IL	IM	IG	IP	*Notes and Exceptions
12. Recycling Operations					a. Collection center with attendant subject to development standards contained in Section 21.52.265.
12.1 Containers for cans, bottles, etc. (accessory use)	Y	Y	Y	Y	
12.2 Collection center with attendant or recycling processing/manufacturing center	C	C	C	N	
13. Recreation And Entertainment Uses					a. Any business involved in the sale of alcoholic beverages shall be subject to conditional use permit review and shall meet the location requirements contained in Section 21.52.201. The following exceptions do not require conditional use permit:
13.1 Outdoor recreation (drive-in theater, racetrack, golf, driving range, shooting range and similar uses)	AP	N	N	See Item 10 in this table.	
13.2 Movie theaters	Y	Y	Y	N	• Restaurant with alcoholic beverage service only with meals, whereby alcoholic beverage sales comprise 30 percent or less of the monthly gross sales of the restaurant. This generally means that any use with a fixed bar is not exempt from the conditional use permit requirement. A service bar is not a fixed bar. A sushi bar where alcoholic beverages are served at the same bar as meals is considered as serving alcoholic beverages only with meals. A cocktail lounge without a bar but with service primarily of hors d'oeuvres and alcoholic beverages shall require a conditional use permit. • Any use located more than 500 ft. from a zone district which allows residential use • Department store or florist shop with accessory sales of alcoholic beverages • Existing legal, nonconforming uses
13.3 Bars, nightclubs, cabarets and the like with alcohol (SIC code 5813*)	C* Y	C* Y	C* Y	C* Y	
13.4 Health clubs and the like (SIC code 7991)	AP	N	N	N	
13.5 Interim Parks					
a. Community gardens	IP	IP	IP	N	See Section 21.52.260.
b. Passive parks	Y	Y	Y	N	See Section 21.45.155.
c. Playgrounds	IP	IP	IP	N	See Section 21.52.260.
d. Recreational parks	AP	AP	AP	N	See Section 21.52.260.

Table 33-2
Uses In Industrial Districts
(Continued)

Use	IL	IM	IG	IP	*Notes and Exceptions
14. Miscellaneous uses					
14.1 Caretaker, night watchman's quarters*	AP	AP	AP	AP	a. Caretaker quarters permitted only in conjunction with a permitted nonresidential use.
14.2 Art studio with associated residence	AP	AP	AP	N	b. Billboards subject to regulations and standards contained in Chapter 21.54.
14.3 Vocational schools (SIC code 824)	Y	Y	Y	Y	c. For temporary use regulations, see Chapter 21.53.
14.4 Job training and vocational rehabilitation (SIC code 833)	AP	AP	AP	AP	
14.5 Daycare facilities (SIC code 835)	C	C	C	C	
14.6 Museums (SIC code 841)	Y	Y	Y	Y	
14.7 Billboards* (outdoor advertising)	C	C	C	C	b. Billboards subject to regulations and standards contained in Chapter 21.54.
14.8 Temporary outdoor events and temporary construction offices*	T	T	T	T	
14.9 Vending carts	AP	AP	AP	N	
15. Alcoholic Beverage Manufacturing* (SIC code 208)*	Y	Y	Y	N	a. *Subject to special development standards (see Section 21.45.114). Alcoholic Beverage Manufacturing and Accessory tasting room uses shall be permitted in all Planned Development (PD) Districts allowing Commercial uses, subject to Section 21.45.114.
15.1 Accessory Tasting Room*	A	A	A	N	
16. Temporary Activating Use	T	T	T	T	See Section 21.53.115.

All projects within the Coastal Zone are also subject to the Local Coastal Program and provisions as set forth in Chapter 21.25 Division IX.

Use, operating, and other regulations contained outside of Title 20 and Title 21 are not certified by the California Coastal Commission.

NOTE: All uses are subject to performance standards as defined in Section 21.33.090.

*	=	See "Notes and Exceptions" column.
Y	=	Permitted by right.
N	=	Not permitted.
AP	=	Administrative use permit required.
Y/AP	=	Either permitted by right or subject to administrative use permit review, depending upon criteria contained in Section 21.33.080.C.
Y/C	=	Either permitted by right or subject to conditional use permit review, depending upon criteria contained in Section 21.33.080.C.
C	=	Conditional use permit required.
T	=	Temporary use. See Chapter 21.53.
IP	=	Interim park use permit required. For special conditions see Chapter 21.52.

The SIC uses are considered here primarily according to the operational characteristics involved in creating the product (e.g., slaughtering, manufacturing pulp, manufacturing industrial inorganic chemicals, petroleum refining) and the effects that these operations may have on nearby uses. The actual product created is of secondary importance. The requirement for a conditional use permit does not presuppose that a proposed use will present adverse impacts, but that the public should be informed of the proposed use and be given the opportunity to comment on the proposal at a public hearing.

(ORD-26-0012 § 5, 2026; ORD-24-0025 § 5, 2024; ORD-20-0040 § 2, 2020; ORD-20-0026 § 13, 2020; ORD-20-0025 § 9, 2020; ORD-20-0018 §§ 15—17, 2020; ORD-20-0011 §§ 3, 4, 2020; ORD-19-0016 §§ 5—7, 2019; ORD-18-0015 § 3(Exh. C), 2018; ORD-17-0024 § 4(Exh. D), 2017; ORD-15-0010 § 2, 2015; ORD-13-0018 § 5(Exh. C), 2013; ORD-13-0022 § 3, 2013; ORD-13-0004 § 1, 2013; ORD-12-0006 § 4, 2012; ORD-11-0011 § 4(Exh. D), 2011; ORD-10-0033 § 1, 2010; Ord. C-7904 § 4, 2004; Ord. C-7550 § 8, 1998; Ord. C-7500 § 6, 1997: Ord. C-7399 § 7, 1996; Ord. C-7392 § 1, 1996; Ord. C-7378 §§ 15, 16, 1995; Ord. C-7360 § 3, 1995)

21.33.090 Performance standards.

A. **Purpose.** The performance standards established in this Section are intended to ensure that industrial/manufacturing uses operate in a manner that protects the public health and safety, and which does not produce adverse impacts on nearby properties nor the community at large. The standards in this Section apply to all industrial/manufacturing districts. The Director of Planning and Building shall be authorized to interpret the performance standards.

B. **Standards May Be Changed.** Ongoing scientific and technological advances related to the identification and measurement of impacts require that these performance standards remain up to date. These standards may be modified from time to time as required by technological changes.

C. **Noise Standards.** All uses and activities shall comply with the noise regulations contained in Chapter 8.80 (Noise) of the City of Long Beach Municipal Code.

D. **Hours of Operation Standards.** Between the hours of ten (10:00) p.m. and seven (7:00) a.m., industrial businesses shall discontinue operations that produce noise levels at the nearest residential district or hospital property line higher than those permitted under Chapter 8.80 (Noise) of the Municipal Code.

E. **Light and Glare Standards.** All lighting, reflective surfaces, or any other source of illumination shall not produce adverse effects on public streets or on any other parcel. Lights shall be shielded at lot lines so as not to be directly visible from any adjoining residential district.

F. **On-Site Containment of Materials and Waste.** No material or waste shall be deposited on a property in such a form or manner that it may be transferred off the property by natural causes or forces such as wind or rain. All materials or wastes which might cause fumes or dust, or which constitute a fire hazard, or which may be edible by or otherwise attractive to rodents or insects, shall be stored outdoors only in closed containers approved by the Director of Planning and Building.

(Ord. C-7360 § 3, 1995)

DIVISION II.

DEVELOPMENT STANDARDS

21.33.100 General provisions.

This Division II establishes development standards applicable to all new construction and additions to existing development in the industrial districts.

(Ord. C-7360 § 3, 1995)

21.33.110 Minimum lot size.

All new subdivisions of land shall comply with the minimum lot size requirements indicated in Table 33-3.

(Ord. C-7360 § 3, 1995)

21.33.120 Maximum lot coverage.

No building or structure shall be constructed to exceed the lot coverage standards indicated in Table 33-3.

(Ord. C-7360 § 3, 1995)

21.33.130 Maximum building and structure height.

A. No building or other structure shall be constructed to exceed the height limitations indicated in Table 33-3, except for signs, which are subject to the standards set forth in Chapters 21.44 (On-Premises Signs) and 21.54 (Billboards).

B. Flagpoles, when placed on the roof of a building, may exceed the height limit for a principal building by ten feet (10′). When placed on the ground, flagpoles shall not exceed a height of sixty feet (60′).

C. Television or radio receiving or transmitting antennas may exceed the applicable height limit as provided for in Section 21.46.060 (Special Development Standards).

D. The following rooftop elements and equipment may extend up to ten feet (10′) above the building height:

1. Rooftop stair and elevator penthouse enclosures.

2. Rooftop heating and air conditioning equipment and ducts.

3. Rooftop safety rails.

E. Exceptions.

1. Rooftop solar collectors and associated supporting structures may exceed the applicable height limit only if necessary for the sole purpose of solar collection, and not otherwise installed on any occupiable areas of the roof, and when located in the coastal zone, public views of the beach, bay, or ocean (as identified in the certified Local Coastal Program) are not adversely impacted.

(ORD-21-0028 § 6, 2021; ORD-19-0028 § 33, 2019; Ord. C-7360 § 3, 1995)

21.33.140 Setbacks and yards.

A. Setbacks and Yards Required. Building setbacks and yards shall be provided as indicated in Table 33-4. Yard areas shall be clear of all structures from the ground to the sky, except for permitted projections, and shall be landscaped in accordance with the landscaping provisions (Chapter 21.42) of this Title.

B. Corner Cutoff Required. Corner cutoffs, as defined in Section 21.15.660 of this Title, shall be required in all industrial districts at the intersections of streets, driveways, and alleys. The corner cutoff shall be free of any structure or vegetation which impedes or obstructs access or visibility up to eight feet (8′) in height.

C. Permitted Projections. No appurtenances, projections, or other building features may project into required yards, except:

1. Architectural elements not more than two feet (2′) into the required yard area;

2. Awnings;

3. Bay windows projecting not more than two feet (2′) into the required yard area;

4. Lamp posts;

5. A porte cochere;

6. Roof eaves projecting no closer than two feet, six inches (2′ 6″) from the property line; and

7. Signs, as specified in Chapter 21.44 (On-Premises Signs) of this Title.

D. Permitted uses. The following uses and accessory structures shall be the only uses and structures permitted in required yard areas: driveways, automobile surface parking lots, landscaping, and on-premises signs. All other uses shall be prohibited.

(ORD-19-0028 § 18, 2019; Ord. C-7360 § 3, 1995)

21.33.145 Parking areas abutting streets.

Wherever a parking area abuts a property line adjacent to a street, a five foot (5') wide landscaped strip shall be provided between the parking area and the property line abutting the public right-of-way. See Chapter 21.42 for additional requirements.

(ORD-10-0031 § 3, 2010; Ord. C-7360 § 3, 1995)

Table 33-3
General Development Standards

Standard	Zone District			
	IL	IM	IG	IP
Minimum Lot Size (a) (see 21.33.110)	15,000 sq. ft.	20,000 sq. ft.	20,000 sq. ft.	No restriction
Maximum Lot Coverage (see 21.33.120)	55%	60%	80% (b)	No restriction
Maximum Building Height (see 21.33.130)	4 stories or 60 ft., whichever is more restrictive	45 ft.	65 ft.	65 ft.
Maximum Non-Building Structure Height	45 ft.	45 ft.	No restriction	No restriction
Maximum Accessory Office Space (see also 21.33.170)	• 25% of gross floor area for tenant spaces ≥5,000 sq. ft. • 45% of gross floor area for tenant spaces < 5,000 sq. ft.	• 25% of gross floor area • 45% of gross floor area for tenant spaces < 5,000 sq. ft.	• 25% of gross floor area • 45% of gross floor area for tenant spaces < 5,000 sq. ft.	No restriction
Minimum Landscaped Area	see Chapter 21.42	see Chapter 21.42	see Chapter 21.42	see Chapter 21.42
Fence Regulations	see Chapter 21.43	see Chapter 21.43	see Chapter 21.43	see Chapter 21.43

Notes:

(a) The minimum lot size standards shall apply only to new subdivision of land. They do not apply to new construction or remodeling on existing lots or to air space subdivisions of existing lots. Lot lines of existing lots may be adjusted per Chapter 20.20 (Subdivision Regulations).

(b) City redevelopment plans may establish an alternative standard which supersedes this standard. For the Westside Redevelopment Project Area, the maximum lot coverage standard is 60 percent for new buildings.

Table 33-4
Minimum Required Setbacks/Yards Areas

Required Setback/Yard Area	IL	IM	IG	IP
Yard Fronting on Minor Arterial or Greater Street Classification	10 ft.	10 ft.	10 ft.	10 ft.
Yard Fronting on Local or Collector Street	6 ft.	0 ft.	0 ft.	0 ft.
Parking Lot Setback for Yard Fronting on a Street	5 ft. (a)	5 ft. (a)	5 ft. (a)	5 ft. (a)
Yards Abutting Alleys	10 ft. from centerline	10 ft. from centerline	10 ft. from centerline	10 ft. from centerline
Yards Abutting Residential District	20 ft.	45 ft.	45 ft.	No restriction
Yards Abutting Nonresidential District	0 ft. (b)	0 ft. (b)	0 ft. (b)	0 ft. (b)

Notes:

(a) See also Section 21.33.145.

(b) Separation between buildings on adjacent lots shall be provided as required by the Fire Code and Uniform Building Code, or any successor Code.

(ORD-10-0031 § 4, 2010)

21.33.150 Outdoor storage and activities.

A. **IL District Regulations.**

1. **Outdoor Storage.** Accessory outdoor storage of goods, materials, or equipment shall be permitted only in the side and rear yards. However, no materials shall be stored within any required street side yard setback. All outdoor storage areas shall be completely screened from view from public rights-of-way and adjacent properties with screening the same height as the materials being stored. Stored goods and materials shall not exceed a stacking height of eight feet (8').

2. **Activities.** Except as otherwise permitted by Table 33-2, no outdoor production, processing, or manufacturing activities associated with a business shall be permitted at any time. All such activities must be conducted within an entirely enclosed structure. This restriction shall not apply to loading operations or other necessary support functions of a business.

B. **IM District Regulations.**

1. **Outdoor Storage.** Outdoor storage shall be permitted except in required front street and side street yard setbacks, and required parking and loading areas. Such storage shall be fully screened from view with solid screening materials at least the same height as the materials being stored, or at least twelve feet (12'), whichever is less. Stored goods and materials shall not exceed a stacking height of fifteen feet (15'), with the exception of container storage, which shall not be stacked higher than two (2) containers.

2. **Activities.** The following are permitted outdoor activities, provided all such activities meet the performance standards contained in Section 21.33.090 of this Chapter: processing, assembly, and fabrication of goods; and the maintenance, repair, and salvage of equipment associated with a business.

C. **IG District Regulations.**

1. **Outdoor Storage.** Outdoor storage shall be permitted except in required front street and side street setbacks, and in required parking and loading areas. Such storage shall be fully screened from view from a public right-of-way and any adjacent or abutting residential use. Stored goods and materials shall not exceed a stacking height of fifteen feet (15').

2. **Transport Containers.** Transport containers used for storing goods, materials, or equipment to be transported by truck, train, or marine vessel may be stored anywhere on a lot, with the exception of any required corner cutoff area. No more than two (2) containers shall be stacked atop one another.

3. **Activities.** The following are permitted outdoor activities, provided all such activities meet the performance standards contained in Section 21.33.090 of this Chapter: processing, assembly, and fabrication of goods; and the maintenance, repair, and salvage of equipment associated with a business.

D. **IP District Regulations.**

1. **Outdoor Storage.** Outdoor storage, including the storage of transport containers used for storing goods, materials, or equipment to be transported by truck, train, or marine vessel, may occur anywhere on a lot, with the exception of any required corner cutoff area. Such storage shall be subject to any screening or security requirements established by the Long Beach Harbor Department.

2. **Activities.** All activities ordinarily associated with port and port-related businesses shall be permitted to occur out of doors consistent with regulations established by the Harbor Department.

E. **Surfacing of Outdoor Storage and Activity Areas.** In all industrial districts, all outdoor storage and activity areas shall be surfaced with paving materials as required by the Director of Planning and Building, and all such surfaced areas shall be maintained in good condition.

(Ord. C-7360 § 3, 1995)

21.33.160 Accessory structures.

A. **Use Restrictions.** The use of accessory buildings and structures shall conform to the requirements contained in Chapter 21.51 (Accessory Uses) of this Title.

B. **Trash Receptacles.** Adequate trash receptacles shall be provided to accommodate the refuse generated on a site. If visible from a public street, receptacles shall conform to the applicable development standards contained in Chapter 21.45 (Special Development Standards) of this Title.

(Ord. C-7663 § 20, 1999; Ord. C-7360 § 3, 1995)

21.33.170 Accessory office space in industrial buildings.

A. **Maximum Area Permitted.** Office space is permitted as an accessory use within an industrial building. The accessory office space is limited to the percent of gross floor area indicated in Table 33-3.

B. **Requirements For Tenant Spaces Containing Less than Five Thousand Square Feet.** As indicated in Table 33-3, tenant spaces which are less than five thousand (5,000) square feet of gross floor area in size may use a maximum of forty-five percent (45%) of gross floor area for office purposes. However, wherever such office space exceeds twenty-five percent (25%) of the gross floor area of an individual tenant space, an additional three (3) parking spaces shall be provided in addition to any parking required for the principal use.

C. **Office Space in Excess of Maximum Allowable.** If office space in excess of the maximum allowable is proposed, the office space shall be considered the principal use, and such use shall be subject to all use regulations and development standards applicable to that principal use.

(Ord. C-7360 § 3, 1995)

21.33.180 Rooftop equipment screening.

A. **Purpose.** The City recognizes that mechanical equipment on rooftops can be unattractive and can facilitate unauthorized access into buildings. Therefore, the screening requirements contained in this Section shall be applied to improve the aesthetic quality of the City and to improve the security of buildings.

B. **Applicability.** This Section applies to all development in the industrial districts for all rooftop equipment visible from an adjacent street, highway or abutting residential district.

C. **Materials and Design.** All screening devices shall be of a material consistent with the color and style of the building, and shall be well-integrated into the building design through such features as parapet walls, false roofs, or equipment rooms. Louvered designs are acceptable if consistent with the building style. All screening materials shall be of a type requiring limited maintenance. Wood lattice shall not be permitted.

D. **Secured.** All rooftop mechanical equipment shall be secured from unauthorized entry to the satisfaction of the Director of Planning and Building.

E. **Approval Required.** Prior to issuance of a mechanical permit for rooftop equipment, the Director of Planning and Building shall review the proposed screening plan for compliance with the provisions of this Section.

(Ord. C-7378 § 17, 1995; Ord. C-7360 § 3, 1995)

21.33.190 Off-street parking and loading.

Off-street parking and loading shall be provided as required by Chapter 21.41 (Off-Street Parking and Loading Requirements) of this Title.

(Ord. C-7360 § 3, 1995)

21.33.200 Landscaping requirements.

Landscaping shall be provided as required by Chapter 21.42 (Landscaping Standards) of this Title.

(Ord. C-7360 § 3, 1995)

21.33.210 Fences and garden walls.

Fences and garden walls, other than those required by this Title for parking lot and outdoor storage screening, are permitted accessory structures subject to the development standards contained in Chapter 21.43 (Fences and Garden Walls) of this Title.

(Ord. C-7360 § 3, 1995)

21.33.220 On-premises signs.

On-premises signs are permitted accessory structures subject to the development standards contained in Chapter 21.44 (On-Premises Signs) of this Title.

(Ord. C-7360 § 3, 1995)

21.33.230 Right-of-way dedications and improvements.

Public right-of-way shall be reserved, dedicated, and/or improved as required by Chapter 21.47 (Dedication, Reservation and Improvement of Public Rights-of-Way) of this Title.

(Ord. C-7360 § 3, 1995)

CHAPTER 21.34 INSTITUTIONAL DISTRICT

21.34.010 Purpose.

The Institutional (I) district is established to create, preserve and enhance areas for public and institutional land uses and to provide restrictions to minimize the effect of such uses on surrounding uses.

(Ord. C-6533 § 1 (part), 1988)

21.34.020 Long range development plan required.

Any site with a lot area exceeding forty thousand (40,000) square feet shall submit a long range development plan for the institution. Such long range development plan shall include all development of the site and site expansions (within the institutional zone or under the institution's ownership, whichever is greater) anticipated over the next twenty (20) years. Such plan shall be submitted to the Planning Commission for approval through the site plan review procedure. No site plan review shall be approved and no building permit shall be issued for any building or structure which is not consistent with the long range development plan.

(Ord. C-7032 § 27, 1992: Ord. C-6533 § 1 (part), 1988)

21.34.025 Site plan review.

Site plan review shall be required pursuant to Division V of Chapter 21.25 (Specific Procedures).

(Ord. C-6533 § 1 (part), 1988)

21.34.030 Adult entertainment business.

Any business considered an "adult entertainment business" as defined by Section 21.15.110 of this Title shall be subject to special locational standards as indicated in Chapter 21.45 (Special Development Standards).

(ORD-18-0018 § 7, 2018; Ord. C-6533 § 1 (part), 1988)

DIVISION I.

PERMITTED USES

21.34.110 Permitted uses.

The principal permitted uses of the institutional district shall be those of a public or institutional nature. Table 34-1 indicates the classes of uses permitted (Y), not permitted (N), permitted as a conditional use (C), permitted as an accessory use (A), permitted with an administrative use permit (AP), and permitted as a temporary use (T) in the Institutional (I) district.

(Ord. C-6895 §§ 17, 18, 1991: Ord. C-6684 § 24 (part), 1990; Ord. C-6533 § 1 (part), 1988)

21.34.120 Prohibited uses.

Any use not specifically permitted by Section 21.34.110, Table 34-1, shall be prohibited.

(Ord. C-6533 § 1 (part), 1988)

DIVISION II.

DEVELOPMENT STANDARDS

21.34.201 General provisions.

Sections 21.34.205 through 21.34.265 set forth the development standards applicable to all uses in the institutional district.

(Ord. C-6533 § 1 (part), 1988)

21.34.205 Lot size.

The minimum lot size for a new subdivision shall be as indicated in Table 34-2.

(Ord. C-6533 § 1 (part), 1988)

21.34.210 Building height.

Maximum building and structure heights shall be as indicated in Table 34-2.

(Ord. C-6533 § 1 (part), 1988)

Table 34-1
Uses in the
Institutional District

	Use	District I
1.	Adult-Use Cannabis Businesses (all subcategories)	N
2.	Arboretum, botanical gardens or nurseries	Y
3.	Cafeterias and restaurants	A
4.	Caretaker's residence	AP
5.	Carnival, fiesta, or similar exhibition or celebration	T
6.	Cemeteries (Crematorium as accessory)	C
7.	Churches	Y
8.	Colleges, universities and vocational training centers	Y
9.	Commercial uses (as principal use)	N
10.	Construction trailer	T
11.	Convention and exhibition centers	Y
12.	Country clubs (with golf course)	Y
13.	Cultural centers	Y
14.	Daycare/preschool	Y
15.	Emergency shelters (see Section 21.45.132)	C
16.	Fire stations	Y
17.	Government offices	Y
18.	Hall rental	C
19.	Disabled and senior citizen housing	C
20.	Historical landmarks, memorials and monuments	Y
21.	Hospitals, medical centers, medical office complexes, convalescent hospitals	Y
22.	Interim storage of vehicles and service yard (2 years)	C
23.	Libraries	Y
24.	Manufacturing	N
25.	Marinas	Y
26.	Off-premises signs	N
27.	Outdoor sales events (see Section 21.52.256)	C
28.	Museums	Y
29.	Parking (commercial)	C
30.	Parking (courtesy)	A
31.	Pistol or rifle range	C
32.	Police station	Y
33.	Police training academy	C
34.	Recreational facility	A
35.	Residential - single-family	Y
36.	Residential - multiple-family	N
37.	Safe parking site (see Section 21.45.163)	C/A
38.	Sale of alcoholic beverage	C
39.	Schools (public or private, excluding vocational schools)	Y

	Use	District I
40.	Schools (vocational)	N
41.	Social service office of nonprofit organization	Y
42.	Special group residence (communal, board and care, etc.)	C
43.	Stadium	C
44.	Trailer used for office or night-watchman's quarters	T
45.	Unattended donation box	A
46.	Water tanks	Y
47.	Wireless telecommunications facilities (see Chapter 21.56)	C

Abbreviations:

Y = Permitted.
N = Not permitted
C = Conditional use permit required. Refer to Chapter 21.52.
A = Permitted as an accessory use. Special conditions may apply. Refer to Chapter 21.51.
T = Permitted as a temporary use subject to the requirements of Chapter 21.53 of this Title.
AP = Permitted with an administrative use permit.

(ORD-20-0026 § 14, 2020; ORD-18-0015 § 4(Exh. D), 2018; ORD-18-0003(Emerg.) § 2(Exh. B), 2018; ORD-13-0022 § 4, 2013; ORD-11-0011 § 5(Exh. E), 2011; Ord. C-7881 § 5, 2003; Ord. C-7399 § 8, 1996; Ord. C-6895 § 18, 1991; Ord. C-6684 § 24 (part), 1990; Ord. C-6533 § 1 (part), 1988)

Table 34-2
Development Standards

Development Criteria	Standard
1. Minimum lot size	10,000 sf
2. Maximum lot coverage	50%
3. Maximum building height	
-Principal structure	30′, or 1′ for each 2′ of distance from abutting residential district, whichever is greater
-Accessory structure	15′
-Flagpoles	Same as principal structure
Abbreviations: sf = square feet	

Note:

(a) Rooftop solar collectors and associated supporting structures may exceed the applicable height limit only if necessary for the sole purpose of solar collection, and not otherwise installed on any occupiable areas of the roof, and when located in the coastal zone, public views of the beach, bay, or ocean (as identified in the certified Local Coastal Program) are not adversely impacted.

(ORD-21-0028 § 5, 2021; ORD-19-0028 § 20, 2019)

21.34.215 Lot coverage.

Maximum lot coverage shall be as indicated in Table 34-2.

(Ord. C-6533 § 1 (part), 1988)

21.34.220 Yards required.

Yard areas shall be provided as indicated in Table 34-3. The structures allowed in yard areas shall be as provided in Table 31-3 and as provided in Section 21.34.250.

(Ord. C-6822 § 15, 1990: Ord. C-6533 § 1 (part), 1988)

21.34.225 Corner cutoffs.

A. Corner Cutoff Required. Corner cutoffs shall be required in all institutional districts at intersections of streets, driveways and alleys. Corner cutoffs shall be a minimum of six feet by six feet (6') x (6').

B. The corner cutoff shall be free of any structure or vegetation which impedes or obstructs access or visibility up to eight feet (8′) in height.

(ORD-19-0028 § 19, 2019; Ord. C-6533 § 1 (part), 1988)

Table 34-3
Yard Requirements

Yard	Required Setback
1. Front	20′
2. Side/rear	
a. Adjoining or abutting nonresidential district	4′
b. Adjoining or abutting residential district	15′
c. Corner lot	10′

21.34.230 Distance between principal use buildings.

Principal use buildings shall be separated by not less than eight feet (8').

(Ord. C-6533 § 1 (part), 1988)

21.34.235 Building design, treatment and finish.

All new and remodeled buildings shall comply with the following criteria:

A. **Compatible Treatment.** All sides of a building visible from a public street or adjoining, abutting or adjacent to a residential district, shall be designed, treated and finished in a manner compatible with the residential area and with the other visible sides of the building.

B. **Contrasting Material.** Not less than ten percent (10%) of a building wall shall be treated and finished with a material other than stucco or cement block, painted or unpainted, unless the Zoning Administrator determines that such contrasting material would detract from the project design or adequate landscaping above minimum standards would provide the equivalent effect.

C. **Roof Security.** All roof areas not visible from the public right-of-way shall be provided with roof features designed to prevent people from gaining unauthorized access to the rooftop.

(Ord. C-6533 § 1 (part), 1988)

21.34.240 Screening required.

A. **Open Uses.** All permitted uses, including storage, shall be screened by a solid wall not less than six feet (6′) in height. Material being stored shall not be visible above the wall.

B. **Parking Lots.** All parking lots shall be screened in accordance with the provisions of Section 21.41.266 of this Title.

C. **Refuse Storage Areas.** Refuse collection receptacles shall be located and screened as required by Chapter 21.45 (Special Development Standards) of this Title.

D. **Mechanical Equipment Screening.** Mechanical equipment shall be screened as follows:

1. **Required.** Rooftop mechanical equipment, except solar collectors and rain gutters, shall be screened on all sides by screening not less than the height of the equipment being screened.

2. **Secured.** All rooftop mechanical equipment shall be secured from unauthorized entry to the satisfaction of the Director of Planning and Building.

3. **Materials.** All rooftop mechanical equipment screening devices shall be of a material requiring a low degree of maintenance. Wood shall generally not be used unless it can be shown that proper maintenance will occur. All screening devices shall be well integrated into the design of the building through such items as parapet walls continuous with the walls of the structure, false roofs, or equipment rooms.

4. **Substitutions.** Well-planned, compact, architecturally-integrated rooftop equipment may be substituted for screening with the approval of the Director of Planning and Building.

(Ord. C-7633 § 21, 1999; Ord. C-6533 § 1 (part), 1988)

21.34.245 Residential development.

Residential development in the Institutional District shall conform to the development standards of the R-1-N Zone District. Special group residences shall conform to the standards specified in Section 21.52.271.

(Ord. C-6533 § 1 (part), 1988)

21.34.250 Accessory structures.

A. **Use Restrictions.** The use of accessory buildings and structures shall conform to the requirements of Chapter 21.51 (Accessory Uses) of this Title.

B. **Development Standards.** Accessory structures and buildings may be placed anywhere on a lot except within the required street front setback area or as otherwise restricted by Chapter 21.45 (Special Development Standards).

C. **Trash Receptacles.** Adequate trash receptacles shall be provided to accommodate all refuse generated on a site. Such receptacles shall conform to the development standards for trash receptacles contained in Chapter 21.45 (Special Development Standards).

(Ord. C-7663 §§ 22, 23, 1999; Ord. C-6533 § 1 (part), 1988)

21.34.255 Off-street parking and loading.

Off-street parking and loading shall be provided as required by Chapter 21.41 (Off-Street Parking and Loading Requirements) of this Title. Parking may be provided on any location on the lot not otherwise prohibited, except it shall not be located within the ten feet (10′) of front yard area abutting a street.

(Ord. C-6533 § 1 (part), 1988)

21.34.260 Landscaping requirements.

Landscaping shall be provided as required by Chapter 21.42 (Landscaping Standards) of this Title.

(Ord. C-6533 § 1 (part), 1988)

21.34.265 Fences and garden walls.

Fences and garden walls are permitted accessory structures subject to the requirements of Chapter 21.43 (Fences and Garden Walls) of this Title.

(Ord. C-6533 § 1 (part), 1988)

21.34.270 On-premises signs.

On-premises signs are permitted accessory structures in the Institutional District subject to the development standards contained in Chapter 21.44 (On-Premises Signs) of this Title.

(Ord. C-6533 § 1 (part), 1988)

21.34.275 Right-of-way dedications and improvements.

Public right-of-way in the Institutional District shall be dedicated and improved as required by Chapter 21.47 (Dedication, Reservation and Improvement of Public Rights-of-Way).

(Ord. C-6533 § 1 (part), 1988)

CHAPTER 21.35 PARK DISTRICT*

21.35.010 Purpose.

The Park P district is established to set aside and preserve publicly owned natural and open areas for active and passive public use for recreational, cultural and community service activities. Parks are

***Note**—Prior ordinance history: (Ord. C-6533, 1988; Ord. C-6755, 1990; Ord. C-7247, 1994; Ord. C-7399, 1996; Ord. C-7663, 1999).

established to promote the mental and physical health of the community and provide physical and psychological relief from the intense urban development of the City. Such areas are characterized by landscaped open space, beaches or inland bodies of water. Table 35-2 indicates the name, type and zoning classification of the various parks located within the City of Long Beach.

(Ord. C-7895 § 1, 2003: Ord. C-7826 § 3, 2002)

21.35.020 Site plan review required.

Site plan review shall be required pursuant to Chapter 21.25, "Specific Procedures", of this Title. A site plan review within the park district shall ensure that the building proposed will be consistent with the serenity, setting and open space character of the park in which it is located.

(Ord. C-7826 § 3, 2002)

21.35.030 Adult entertainment business.

Pertaining to the proximity of such uses to parks, any business considered an "adult entertainment business" as defined by Section 21.15.110 of this Title shall be subject to special locational standards as indicated in Chapter 21.45, "Special Development Standards".

(ORD-18-0018 § 8, 2018; Ord. C-7826 § 3, 2002)

DIVISION I.

PERMITTED USES

21.35.110 Purpose.

A. **Permitted Uses.** Table 35-1 indicates the classes of uses permitted (Y), not permitted (N), permitted as a conditional use (C), permitted as an accessory use (A), and permitted as a temporary use (T) in the park district.

(Ord. C-7826 § 3, 2002)

21.35.120 Prohibited uses.

Any use not specifically permitted by Table 35-1 shall be prohibited.

TABLE 35-1
Uses in Park Districts

Use	District P
Adult-Use Cannabis Businesses (all categories)	N
Alcoholic beverage sales - with permitted or conditionally permitted uses	C
Amphitheater, band shell, performance stage and the like:	
a. With a seating capacity of up to 200 persons	Y
b. With a seating capacity greater than 200 persons	C

Use	District P
Athletic facilities including sports fields, swimming pools, courts and the like	Y
Campgrounds (except recreational vehicle campgrounds)	Y
Circuses	N
Comfort stations	A
Commercial recreation uses [(a)] (see definition, e.g., miniature golf courses, water slides, bicycle rentals, nonmotorized vehicles, and the like)	C
Commercial uses-other	N, except sidewalk vendors which are allowed pursuant to Chapter 5.73 of the LBMC
Community gardens	Y
Community service uses [(b)]:	
a. Nonregional, City staffed	Y
b. Nonregional, nonprofit	C
c. Nonregional, for profit	N
Community service uses [(b)] -regional	N
Construction trailer	T
Cultural and educational uses (e.g., museums, ranchos, nature centers and the like)	Y
Daycare and preschools:	
a. Cooperatives and City staffed	Y
b. Nonprofit	C
Electronic video games (not to exceed 4 in any 1 building)	A
Exhibition grounds on a permanent basis for fairs, carnivals, trade shows and the like, or for continuation of fairs, carnivals, trade shows and the like beyond 10 days in length	N
Exhibitions, trade shows and the like	T
Fairs, festivals, carnivals, holiday celebrations, pageants, social events and the like for a period not to exceed 10 days	T
Food and beverage concessions (not including alcoholic)	A
Landscaped open areas	Y
Libraries of the City of Long Beach	C
Mobile food truck/Mobile food facility (see Section 21.53.106)	T
Motor vehicle racing or testing	N
Natural habitat reserves or preserves	Y
Offices for the supervision and maintenance of park facilities, programs and activities	A
Parking (commercial)	N
Parks and related improvements	Y
Passive games and activities, and arts and crafts classes	Y
Police and fire stations, communication centers, schools, government buildings and the like	N
Private clubs (nonprofit and recreational only)	C
Recreational equipment sale and rental for use in park (except that motorcycles, motorized skateboards, mopeds and the like, are not permitted)	A
Recreational vehicle campground	C
Recreational vehicle storage	N
Residential uses (except caretaker or guard facilities)	N
Restaurants with or without alcoholic beverage sales	C
Sale of alcoholic beverage	C

Use	District P
Sewage and wastewater treatment of tertiary or more advanced level of treatment	A
Wireless Telecommunications Facilities (see Chapter 21.56)	C
Any use which violates the noise ordinance of the City	N

Abbreviations: Y = Permitted as a principal use.
N = Not permitted.
C = Conditional use permit required. Refer to Chapter 21.52.
A = Permitted as accessory use. Refer to Chapter 21.51.
T = Permitted as temporary use. Refer to Chapter 21.53.

(a) "Commercial recreation" is any recreational use in parks for which a fee is charged independent of City oversight. (See definition for "commercial recreation" in Section 21.15.565 and findings for such uses in the park P district in Section 21.52.610.)

(b) "Community service use" is a service provided for the health and welfare of the individual receiving the service. Such uses in parks do not include the permanent provision of food, shelter or medical services except for counseling, health fairs, medical screening and the like. Nonregional community service uses serve the local community—the neighbors nearby who require the service. Regional serving community service providers serve a much wider constituency.

(ORD-26-0012 § 6, 2026; ORD-24-0032 § 1, 2024; ORD-24-0003 § 1, 2024; ORD-18-0015 § 5(Exh. E), 2018; ORD-11-0011 § 6(Exh. F), 2011; Ord. C-7826 § 3, 2002)

Table 35-2
Park Dedications/Designations

Park Name	Type	Dedication Type	Zoning Classification
Admiral Kidd	N	Dedicated	P
Alamitos at 72nd	M	Designated	P
Alamitos Bay Marina	SU	Designated	PD-4
Arbor Street	M	Dedicated	P
Atlantic Plaza	N	Dedicated	P
Bayshore Playground	M	Designated	P
Beach	R	Designated and Dedicated	P
Belmont Pier and Plaza	SU	Designated	PD-2 and R-4-R & P
Belmont Pool Complex	SU	Designated	PD-2 and P
Birdcage	M	Dedicated	P
Bixby	C	Dedicated	P
Bixby Knolls	N	Dedicated	P
Bouton Creek	M	Dedicated	P
Bluff	G	Dedicated	P
Burton Chace	M	Dedicated	P
California Recreation Center	N	Dedicated	P
Carroll	M	Dedicated	P
Cesar Chavez	C	Dedicated	PD-30 and PR
C. David Molina	N	Dedicated	P
Channel View	G	Dedicated	PD-1
Cherry	C	Dedicated	P
Chittick Field	SU	County owned	P
College Estates	N	Dedicated	P
Colonnade	M	Dedicated	R-1-S
Colorado Lagoon	SU	Designated	P
Coolidge	N	Dedicated	P
Craftsman Village	M	Dedicated	P
Crocker Plaza (Victory)	G	Dedicated	PD-6
Daisy Avenue	G	Dedicated	P

Park Name	Type	Dedication Type	Zoning Classification
Davies Launch Ramp	SU	Designated	P
Deforest	N	Dedicated	P
Deforest Nature Trail	SU	County owned	P
Donald Douglas Plaza	M	Dedicated	P
Douglas	M	Dedicated	P
Downtown Marina Mole	SU	Designated	PD-6
Drake	N	Dedicated	PD-10
East Village Arts	M	Dedicated	PD-30
El Dorado Park West	C	Dedicated	P
El Dorado Park Golf Course	GC	Dedicated	P
El Dorado Regional Park	R	Dedicated	P
El Dorado - Nature/Community Gardens	SU	Dedicated	P
Fellowship	M	Dedicated	PD-22
Fourteenth Street	M	Dedicated	PD-29 and P
Golden Shore Marine Reserve	SU	Designated	PD-6 and PD-21
Golden Shore RV	SU	Designated	PD-6 and PD-21
Grace	N	Dedicated	P
Heartwell	C	Dedicated	P
Heartwell (Campfire)	SU	Dedicated	Institutional
Heartwell Park Golf Course	GC	Dedicated	P
Houghton	C	Dedicated	P
Hudson	N	Dedicated	P
Jack Dunster Marine Reserve	SU	Dedicated	PD-1
Jack Nichol	G	Dedicated	PD-1
Jackson Street	M	Dedicated	R-1-N and P
Jenni Rivera Memorial	G	Dedicated	P
La Bella Fontana di Napoli	SU	Dedicated	P
Leeway Sailing Center	SU	Designated	P
Lilly	M	Dedicated	P
Lincoln	SU	Dedicated	PD-30
Livingston Drive	M	Dedicated	P
LB Aquarium of the Pacific	SU	Designated	PD-6
LB Museum of Art	SU	Dedicated	P
Locust Tot Lot	M	Dedicated	P
Lookout	M	Dedicated	P
Los Altos	N	Dedicated	P
Los Altos Plaza	M	Dedicated	P
Los Cerritos	N	Dedicated	P
MacArthur	N	Dedicated	P
Marina Green	SU	Designated	PD-6 and P
Marina Vista	N	Designated	PD-1
Marine Park (Mother's Beach)	SU	Designated	P
Marine Stadium	SU	Designated	PD-1 and P
Martin Luther King Jr.	C	Dedicated	P
Mary Molina Community Garden	M	Dedicated	P
Maurice "Mossy" Kent	M	Designated	PD-4
Miracle on 4th Street	M	Dedicated	P
Naples Plaza (Overlook Park)	N	Dedicated	P
Orizaba	N	Dedicated	P
Pacific & 6th Community Garden	M	Dedicated	P
Pacific Electric Right-of-Way	G	Dedicated	P
Pan American	N	Dedicated	P
Peace	M	Dedicated	P
Plaza Zaferia	M	Dedicated	P
Queen Mary Events	SU	Designated	PD-21
Rainbow Harbor Esplanade	SU	Designated	PD-6

Park Name	Type	Dedication Type	Zoning Classification
Rainbow Lagoon	SU	Designated	PD-6
Ramona	N	Dedicated	P
Recreation	C	Dedicated	P
Recreation Park Golf Course	GC	Dedicated	P
Recreation - 9 Hole (North of 6th Street)	GC	Dedicated	P
Recreation - 9 Hole (South of 6th Street)	GC	Designated	P
Rose	M	Dedicated	P
Rotary Centennial	M	Dedicated	PD-22
Santa Cruz (Victory)	M	Dedicated	PD-6
Scherer	C	Dedicated	P
Shoreline Aquatic	SU	Designated	PD-6
Silverado	C	Dedicated	P
Sims Pond	SU	Dedicated	PD-1
Skylinks	GC	Dedicated	P
Sleepy Hollow	G	Dedicated	P
Somerset	N	Dedicated	P
South Shore Launch Ramp	SU	Designated	PD-21
South Street Parkway	G	Dedicated	P
Stearns Champions	C	Dedicated	P
Tanaka Park	M	Dedicated	P
Treasure Island	M	Dedicated	P
Veterans	C	Dedicated	P
Victory	G	Dedicated	PD-6
Wardlow	N	Dedicated	P
Whaley	N	Dedicated	P
Will Rogers	M	Dedicated	Institutional/PD-1
Willow Springs (Parcel A only)	C	Dedicated	P
Wrigley	G	County owned	P

N = Neighborhood; C = Community; M = Mini; SU = Special Use; GC = Golf Course; G = Greenway

(ORD-24-0030 § 1, 2024; ORD-22-0023 § 1, 2022; ORD-22-0019 § 1, 2022; ORD-06-0004 § 1, 2006: Ord. C-7895 § 2, 2003)

DIVISION II.

DEVELOPMENT STANDARDS

21.35.205 General provisions.

The provisions of Sections 21.35.210 through 21.35.260 shall be the standards for construction or use in the park district. Any conversion of park land must be replaced on amenity for amenity basis on at least a two to one (2:1) ratio. One (1) acre of replacement land shall be located in the park service area where the land was converted and an additional acre of replacement land shall be located in a park service area needing park land as determined by the recreation commission.

(Ord. C-7826 § 3, 2002)

21.35.210 Lot size.

No lot shall be divided or reduced in size from that existing on the effective date of this Title.

(Ord. C-7826 § 3, 2002)

21.35.215 Building height.

The maximum height of all buildings shall be thirty feet (30′).

(Ord. C-7826 § 3, 2002)

21.35.220 Site coverage.

Based upon park type classifications, specified in Table OSR-2 of the general plan open space and recreation element, site coverage in parks shall be limited to the following maximum percentages of total park area:

Mini and greenway parks: One percent (1%).

Regional parks: Two percent (2%).

Neighborhood parks: Seven percent (7%).

Community parks: Ten percent (10%).

Special use parks: To be determined by site plan review.

(Ord. C-7826 § 3, 2002)

21.35.225 Yards—Required.

Ten feet (10′) abutting any street right-of-way and five feet (5′) abutting any other zoning district, shall be open, free of any structures and shall be landscaped.

(Ord. C-7826 § 3, 2002)

21.35.230 Design of buildings.

All buildings shall be designed, treated and finished to blend with the open and landscaped surroundings. All mechanical appurtenances, other than rain gutters and solar collectors, shall be screened from public view.

(Ord. C 7826 § 3, 2002)

21.35.235 Screening required.

All storage and maintenance equipment shall be screened from public view to the satisfaction of the Director of Planning and Building.

(Ord. C 7826 § 3, 2002)

21.35.240 Accessory structures.

A. **Use Restrictions.** The use of accessory buildings and structures shall conform to the requirements of Chapter 21.51, "Accessory Uses", of this Title.

B. **Development Standards.** Accessory structures and buildings may be placed anywhere on a lot except within the required street front setback area or as otherwise restricted by Chapter 21.45, "Special Development Standards".

C. **Trash Receptacles.** Adequate trash receptacles shall be provided to accommodate all refuse generated on a site. Such receptacles shall conform to the development standards contained in Chapter 21.45, "Special Development Standards".

(Ord. C 7826 § 3, 2002)

21.35.245 On-premises signs.

A. **Park Signs.** Each park may display one freestanding sign, not to exceed one hundred (100) square feet, on each street frontage facing each direction, and one (1) freestanding sign, not to exceed twenty-four (24) square feet, for each major vehicle entrance to the park. Such signs shall identify the name of the park only.

B. **Building Signs.** Each building in the park district may contain one (1) wall sign on each building wall. Such signs shall not exceed fifty (50) square feet in area. Sign copy shall be limited to the identification of the facility, including the name of any person to whom the facility is dedicated.

C. **Signs on Public Properties.** Exempt signs otherwise eligible under Section 21.44.070 shall be permitted in the park district.

D. **Prohibited Signs.** All signs other than those specified in Subsections 21.35.245.A through 21.35.245.C shall be prohibited.

(Ord. C 7826 § 3, 2002)

21.35.250 Off-street parking and loading.

Parking and loading spaces shall be provided as required by Chapter 21.41, "Off-Street Parking and Loading Requirements", of this Title.

(Ord. C 7826 § 3, 2002)

21.35.255 Landscaping requirements.

Landscaping shall be provided as required by Chapter 21.42, "Landscaping Standards", of this Title.

(Ord. C 7826 § 3, 2002)

21.35.260 Fences and garden walls.

Fences and garden walls are permitted accessory structures subject to the development standards contained in Chapter 21.43, "Fences and Garden Walls", of this Title.

(Ord. C 7826 § 3, 2002)

CHAPTER 21.36 PUBLIC RIGHT-OF-WAY

21.36.010 Purpose.

The Public Right-of-Way (PR) District is established to create, enhance and preserve open areas of public rights-of-way and to protect such areas from encroachment by other uses.

(Ord. C-6533 § 1 (part), 1988)

DIVISION I.

PERMITTED USES

21.36.110 Permitted uses.

Table 36-1 indicates the classes of uses permitted (Y), not permitted (N), permitted as a conditional use (C) and permitted as an accessory use (A) in the Public Right-of-Way District. Accessory uses and conditional uses may have special development standards as outlined in Chapters 21.51 (Accessory Uses) and 21.52 (Conditional Uses), respectively, of this Title.

(Ord. C-7326 § 17, 1995; Ord. C-6684 § 26, 1990; Ord. C-6533 § 1 (part), 1988)

21.36.120 Prohibited uses.

Any use not specifically permitted by Table 36-1 shall be prohibited.

(Ord. C-6533 § 1 (part), 1988)

DIVISION II.

DEVELOPMENT STANDARDS

21.36.210 Development standards.

There are no special development standards for the Public Right-of-Way District.

(Ord. C-6533 § 1 (part), 1988)

TABLE 36-1
Uses in the Public Right-of-Way District

Use	District (PR)
1. Agriculture	A
2. Caretaker dwelling	A
3. Electrical distribution station, pipeline or flood-control pumping station, railroad switching station or other similar facility essential to the operation of rights-of-way	A
4. Electrical generating facility (except solar)	N
5. Flood control rights-of-way	Y
6. Freeway rights-of-way	Y
7. Public recreational facilities	A
8. Railroad or rapid transit rights-of-way	Y
9. Rail yard or maintenance yard	N
10. Right-of-way maintenance facilities	A
11. Solar collectors	Y
12. Tree farm or nursery	Y
13. Utility rights-of-way	Y
14. Wireless telecommunication facilities (see Chapter 21.56)	C

Abbreviations: Y = Permitted as a principal use.
N = Not permitted.
C = Conditional use permit required. Refer to Chapter 21.52.
A = Permitted as an accessory use. Special standards may apply. Refer to Chapter 21.51.

(ORD-11-0011 § 7(Exh. G), 2011; Ord. C-7399 § 10, 1996; Ord. C-7326 § 17, 1995; Ord. C-6533 § 1 (part), 1988)

CHAPTER 21.37 PLANNED DEVELOPMENT DISTRICTS AND SPECIFIC PLANS*

DIVISION I.

PLANNED DEVELOPMENT DISTRICTS

21.37.110 Purpose.

The Planned Development (PD) District is established to allow flexible development plans to be prepared for areas of the City which may benefit from the formal recognition of unique or special land

***Editor's note—**ORD-20-0018 § 18, adopted May 19, 2020, amended Ch. 21.37 in its entirety to read as herein set out. Former Ch. 21.37, §§ 21.37.010—21.37.330, pertained to similar subject matter and derived from: ORD-16-0009 § 3, 2016; Ord. C-7959 § 3, 2004; Ord. C-7607 § 2, 1999; Ord. C-7466 § 3, 1997; Ord. C-7343 § 3, 1995; Ord. C-7115 § 7, 1993; Ord. C-6886 § 7, 1991; Ord. C-6595 § 11, 1989; Ord. C-6578 § 2, 1989; Ord. C-6518 § 2, 1988; and Ord. C-6533 § 1(part), 1988.

uses and the establishment of special design policies and standards not otherwise possible under conventional zoning district regulations. Purposes of the planned development district include permitting a compatible mix of land uses, allowing for planned commercial areas and business parks, and encouraging a variety of housing styles and densities.

(ORD-20-0018 § 18, 2020)

21.37.120 Districts established.

On and after September 1, 1988, all planned development districts shall be indicated by the PD designation, a number and a common name. Planned development districts are as follows:

1. PD-1—Southeast Area Development and Improvement Plan (SEADIP) (repealed) (superseded by Southeast Area Specific Plan SP-2) (See Section 21.37.210).
2. PD-2—Belmont Pier
3. PD-3—Reserved
4. PD-4—Long Beach Marina
5. PD-5—Ocean Boulevard
6. PD-6—Downtown Shoreline
7. PD-7—Long Beach Business Center
8. PD-8—Reserved
9. PD-9—Long Beach Airport Business Park
10. PD-10—Willmore City
11. PD-11—Rancho Estates
12. PD-12—Long Beach Airport Terminal
13. PD-13-Atlantic Aviation Center (repealed) (superseded by SP-3 Globemaster Corridor Specific Plan).
14. PD-14—Reserved
15. PD-15—Redondo Avenue
16. PD-16—Reserved
17. PD-17—Alamitos Land
18. PD-18—Kilroy Airport Center

19. PD-19—Douglas Aircraft
20. PD-20—All Souls
21. PD-21—Queensway Bay
22. PD-22—Pacific Railway
23. PD-23—Douglas Center
24. PD-24—Reserved
25. PD-25—Atlantic Avenue
26. PD-26—West Long Beach Business Park
27. PD-27—Willow Street Center
28. PD-28—Pacific Theaters
29. PD-29—Long Beach Boulevard (repealed) (superseded by Midtown Specific Plan (SP-1))
30. PD-30—Downtown Long Beach
31. PD-31-California State University Research and Technology Center Planned Development
32. PD-32 (PD-32 North and PD-32 South)—Douglas Park

(ORD-23-0008 § 1, 2023; ORD-21-0015 § 1, 2021; ORD-20-0018 § 18, 2020)

21.37.130 Qualifying standards.

In order to qualify for the planned development district classification, a property must contain not less than five (5) acres in size and must be a full block face surrounded on all sides by public right-of-way. In any event, the property must have direct access to a public street.

(ORD-20-0018 § 18, 2020)

21.37.140 Establishment procedures.

A planned development district classification shall be established in accordance with the administrative procedures contained in Division VII of Chapter 21.25 (Specific Procedures). Among other things, these procedures call for preparation and adoption of a use and development standards plan.

(ORD-20-0018 § 18, 2020)

21.37.150 Development standards.

The development standards and design guidelines for a Planned Development District shall be those adopted by the City Council in the ordinance for each PD zone. Whenever a PD zone is silent or does

not contain any particular development standard (such as landscaping, parking configuration, or permitted projections into required yard areas), then the Zoning Administrator shall determine the development standard that shall apply, taking into consideration which development standard is closest to the overall intent of the PD.

(ORD-20-0018 § 18, 2020)

21.37.160 Site plan review.

Site plan review is required for all development proposals within PD districts pursuant to Division V of Chapter 21.25 (Specific Procedures) of this Title. The Site Plan Review Committee shall refer to the Planning Commission all planned development district project applications which vary from the general or specific use and development standards but which are consistent with the intent of the particular planned development district.

(ORD-20-0018 § 18, 2020)

21.37.170 Alcoholic beverage sales uses.

On-premises and off-premises alcoholic beverage sales uses in planned development districts shall be permitted only as conditional uses unless such uses are specifically exempted from the conditional use permit process by a particular planned development district ordinance.

(ORD-20-0018 § 18, 2020)

21.37.180 Use regulations—Amendments to Title 21.

When this Title is amended to add or change regulations for a specific land use in the Residential Districts (Ch. 21.31), Commercial Districts (Ch. 21.32), Industrial Districts (Ch. 21.32), Institutional District (Ch. 21.34), and Park District (Ch. 21.35), the Zoning Administrator may determine that the same use regulations apply to all or certain Planned Development Districts (or subareas thereof), if the following conditions are met:

A. The use is not directly or explicitly regulated by the existing PD use regulations;

B. The use is consistent in nature with the categories, types and characteristics of uses permitted in the PD (or subareas thereof), and will not introduce a new use that will cause substantial adverse effects upon the community; and

C. The use is not in conflict with the goals or intent of the PD.

Such determination shall be made in writing and shall be appended to the affected PD(s), as appropriate.

(ORD-20-0018 § 18, 2020)

DIVISION II.

SPECIFIC PLANS

21.37.200 Purpose.

As set forth in Government Code sections 65450 through 65458, the specific plan provides a means to establish more specific land use regulations and design standards for properties and areas requiring special attention or treatment. A specific plan serves as a policy and regulatory document, with policy direction and project development concepts consistent with the General Plan.

(ORD-20-0018 § 18, 2020)

21.37.210 Specific Plans established.

On and after May 1, 2016, all specific plans shall be indicated by the SP designation, a number and a common name. Specific plans are as follows:

1. SP-1—Midtown

2. SP-2—Southeast Area

3. SP-3—Globemaster Corridor.

4. SP-4—Century Villages at Cabrillo.

(ORD-23-0008 § 2, 2023; ORD-21-0015 § 2, 2021; ORD-20-0018 § 18, 2020)

21.37.220 Establishment procedures.

A specific plan shall be established in accordance with the administrative procedures contained in Division I of Chapter 21.25 (Specific Procedures—Zone Changes and Zoning Regulation Amendments).

(ORD-20-0018 § 18, 2020)

21.37.230 Development standards.

The development standards and design guidelines for a Specific Plan shall be those adopted by the City Council in the ordinance for each SP. Whenever a SP is silent or does not contain any particular development standard (such as landscaping, parking configuration, or permitted projections into required yard areas), then the Zoning Administrator shall determine the development standard that shall apply, taking into consideration which development standard is closest to the overall intent of the Specific Plan.

(ORD-20-0018 § 18, 2020)

21.37.240 Use regulations—Amendments to Title 21.

When this Title is amended to add or change regulations for a specific land use in the Residential Districts (Ch. 21.31), Commercial Districts (Ch. 21.32), Industrial Districts (Ch. 21.32), Institutional District (Ch. 21.34), and Park District (Ch. 21.35), the Zoning Administrator may determine that the same use regulations apply to all or certain Specific Plans (or subareas or districts thereof), if the following conditions are met:

A. The use is not directly or explicitly regulated by the existing SP use regulations;

B. The use is consistent in nature with the categories, types and characteristics of uses permitted in the SP (or subareas or districts thereof), and will not introduce a new use that will cause substantial adverse effects upon the community; and

C. The use is not in conflict with the goals or intent of the SP.

Such determination shall be made in writing and shall be appended to the affected SP(s), as appropriate.

(ORD-20-0018 § 18, 2020)

CHAPTER 21.38 HORSE OVERLAY DISTRICT

21.38.010 Purpose.

The purpose of this Chapter is to establish reasonable and uniform regulations, safeguards and controls for keeping and maintaining horses within the City. The Horse Overlay (H) district shall be considered an overlay district and must be used in conjunction with an underlying use district. Except for the supplemental regulations related to the keeping of horses described in this Chapter, all other uses shall comply with the regulations applicable to the underlying district.

(Ord. C-6533 § 1 (part), 1988)

DIVISION I.

PERMITTED USES

21.38.110 Permitted uses.

Table 38-1 indicates all uses permitted (Y) and not permitted (N) in the Horse Overlay district.

(Ord. C-6533 § 1 (part), 1988)

Table 38-1
Uses in the Horse Overlay District

Use	Zone District:	R-1	R-2, R-3, R-4	All Other Districts
Uses and accessory uses permitted in underlying district		Y	Y	Y

Use / Zone District:	R-1	R-2, R-3, R-4	All Other Districts
Horses and ponies kept for personal use of property owner or occupant of property	Y	Y	Y
Rental of stable or stall space	N	Y	Y
Keeping of horses and ponies for off-site commercial use	N	N	Y
Regular breeding of horses or ponies for resale	N	N	Y
Rental of horses or ponies for riding	N	N	Y

Use	Zone District:	R-1	R-2, R-3, R-4	All Other Districts
Offering of instruction in horsemanship		N	N	Y
Keeping of horses and ponies for commercial purposes		N	N	Y
Abbreviations: Y = Permitted N = Not permitted				

21.38.120 Prohibited uses.

All uses not listed in Table 38-1 as permitted uses shall be prohibited.

(Ord. C-6533 § 1 (part), 1988)

DIVISION II.

DEVELOPMENT STANDARDS

21.38.201 Number of horses permitted.

Table 38-2 indicates the number of horses permitted within various underlying districts. In all districts, no horse shall be kept on any lot containing less than eight thousand (8,000) square feet of gross lot area.

(Ord. C-6533 § 1 (part), 1988)

Table 38-2
Number of Horses Permitted

District	Number of Horses Permitted
R-1	Not more than one horse for each 2,500 square feet of lot area; and/or Not more than five horses on any one lot
R-2, R-3, R-4	Not more than one horse for each 2,500 square feet of lot area
All other districts	Not more than one horse for each 1,000 square feet of lot area

21.38.203 General.

The provisions of Sections 21.38.205 through 21.38.245 shall be the supplemental development standards in horse overlay districts.

(Ord. C-6533 § 1 (part), 1988)

21.38.205 Stalls required.

Each horse kept on the premises shall be provided with a permanent covered stall. The number of stalls shall not exceed the permitted number of horses.

(Ord. C-6533 § 1 (part), 1988)

21.38.210 Permitted location.

Stables, stalls and corrals shall be confined to the rear fifty percent (50%) of the lot. Corrals shall not be allowed in side yard areas.

(Ord. C-6533 § 1 (part), 1988)

21.38.215 Distance from residential units.

A distance of at least one hundred feet (100') shall be maintained between all stable or stall walls and any dwelling unit on adjacent or abutting lots. Corrals shall not be allowed within twenty-five feet (25') of any residence.

(Ord. C-6533 § 1 (part), 1988)

21.38.220 Distance from property line.

A minimum distance of ten feet (10') shall be maintained between any property line and any stable, stall or corral.

(Ord. C-6533 § 1 (part), 1988)

21.38.225 Distance from accessory structures.

Stable wails with openings and stalls shall maintain a minimum distance of ten feet (10') from any other accessory structure. However, solid stable walls may be attached to accessory structures provided that both structures receive adequate light, air and ventilation.

(Ord. C-6533 § 1 (part), 1988)

21.38.230 Construction requirements—Stalls and stables.

All stables and stalls shall be constructed in a manner which allows them to be kept in a clean and sanitary condition. Exterior walls shall be constructed in the same manner as is required for permanent buildings. All stables shall have a solid, fixed roof.

(Ord. C-6533 § 1 (part), 1988)

21.38.235 Construction requirements—Corrals.

Corrals shall be completely enclosed by fences or stables not less than five feet, six inches (5'6") in height. All gates shall have latching devices.

(Ord. C-6533 § 1 (part), 1988)

21.38.240 Parking requirements.

Parking shall be provided as required by Chapter 21.41 (Off-Street Parking and Loading Requirements) of this Title.

(Ord. C-6533 § 1 (part), 1988)

21.38.245 Landscaping.

The area between any corral or stable and any property line shall be landscaped and maintained in a neat and healthy condition. One (1), fifteen (15) gallon tree shall be planted for each thirty (30) linear feet of property line adjoining a public right-of-way. See Chapter 21.42 for additional landscaping requirements.

(ORD-10-0031, § 5, 2010; Ord. C-6533 § 1 (part), 1988)

21.38.250 Nonconforming stables and corrals.

Property owners keeping horses within designated horse overlay districts shall bring their properties into full compliance with the requirements of this Chapter not later than April 17, 1981. Property owners keeping horses outside a horse overlay district shall discontinue such use not later than October 17, 1982.

(Ord. C-6533 § 1 (part), 1988)

CHAPTER 21.39 HIGH-RISE OVERLAY DISTRICT

21.39.010 Purpose.

The purpose of this Chapter is to establish special building height limits to allow taller, highrise buildings to locate outside the downtown area.

(Ord. C-6533 § 1 (part), 1988)

21.39.020 Building height restrictions.

Building height restrictions within the high-rise overlay district shall be indicated on the zoning map by the high-rise overlay designation followed by a number indicating the maximum allowable height in feet, a slash, and then a number indicating the maximum number of building stories allowed, such as "CO (HR-60/6)."

Where no numbers are indicated on the zoning map, the height in both feet and stories shall be determined and specified during site plan review.

(Ord. C-6533 § 1 (part), 1988)

21.39.030 Applicable districts.

The Commercial office (CO), commercial corridor (CC), commercial tourist (CT), commercial storage (CS), and institutional (I) districts are the only districts appropriate for the high rise overlay zone.

(ORD-25-0011 § 1, 2025; Ord. C-6684 § 5, 1990)

DIVISION I.

PERMITTED USES

21.39.110 Permitted uses.

Any use permitted in the underlying zoning district shall be permitted in the high-rise overlay district.

(Ord. C-6533 § 1 (part), 1988)

DIVISION II.

DEVELOPMENT STANDARDS

21.39.210 General provisions.

Section 21.39.220 sets forth special development standards for buildings in a high-rise overlay district permitted to exceed the height limits established for the underlying district.

(Ord. C-6533 § 1 (part), 1988)

21.39.220 High-rise restrictions.

A. **Building Height.** Development shall not exceed the building height restrictions indicated on the zoning map as described in Section 21.39.020 above.

B. **Lot Size.** A minimum lot size of twenty thousand (20,000) square feet and a minimum lot dimension of one hundred thirty-five feet (135') in any direction are required for any proposed building greater than forty-five feet (45') in height.

C. **Yards.** The yard areas indicated in Table 39-1 shall be required for all buildings more than forty-five feet (45') in height. The yards shall be clear of all structures from the ground to the sky, except as otherwise permitted by provisions of this Title regulating building projections.

D. **Landscape Buffer.** All lots with buildings greater than forty-five feet (45') in height shall require a landscaped buffer on all four (4) sides of the building.

E. **Other Standards.** For all other development standards, the standards for the underlying district shall apply.

(Ord. C-6533 § 1 (part), 1988)

21.39.230 Residential use.

When the high-rise overlay is applied to a district which allows residential, any building containing primarily residential use shall be allowed the applicable density of the R-4-H zone.

(Ord. C-6684 § 6, 1990)

Table 39-1
High-Rise Yard Requirements

Yard	Required Setback
1. Yards abutting a street [(a)]	20 ft.
2. Yards abutting residential district[(b)]	
a. If building height less than or equal to 45′	Same as underlying district
b. If building height greater than 45′	1/5 of the building height, but total setback not to exceed fifteen (15) percent of the lot width or depth as applicable
3. Yards abutting nonresidential district	Same as underlying district

[(a)] An average setback for yards abutting a street shall be allowed through the Site Plan Review process, provided no building encroaches more than ten feet (10') into the required setback. For purposes of establishing an average setback, no portion of a building setback more than thirty feet (30') may contribute to the average setback calculation.

[(b)] Includes residential district across an alley.

(ORD-19-0003 § 1, 2019)

CHAPTER 21.40 HEIGHT LIMIT OVERLAY DISTRICT (HL)

21.40.010 Purpose.

The purpose of this Chapter is to establish special building height limits in areas of the City where lower scale development is desired to maintain neighborhood character.

(Ord. C-6533 § 1 (part), 1988)

21.40.020 Building height restrictions.

Building height restrictions within the Height Limit Overlay (HL) district shall be indicated on the zoning map by the overlay designation (HL) followed by a number indicating the maximum allowable height in feet, a slash, and then a number indicating the maximum number of building stories allowed, such as "R-3-3(HL 20/2)." Where no numbers are indicated on the zoning map, the height in both feet and stories shall be determined and specified during site plan review.

(Ord. C-6533 § 1 (part), 1988)

DIVISION I.

PERMITTED USES

21.40.110 Permitted uses.

Any use permitted in the underlying zone district shall be permitted in the building height overlay district.

(Ord. C-6533 § 1 (part), 1988)

DIVISION II.

DEVELOPMENT STANDARDS

21.40.210 General provisions.

Section 21.40.220 sets forth special development standards for buildings with height limits lower than those permitted in the underlying zone district.

(Ord. C-6533 § 1 (part), 1988)

21.40.220 Lower height limits.

A. **Building Height.** Development shall not exceed the building height restrictions indicated on the zoning map as described in Section 21.40.020 above.

B. **Other Standards.** For all other development standards, the standards of the underlying zone district shall apply.

(Ord. C-6533 § 1 (part), 1988)

CHAPTER 21.41 OFF-STREET PARKING AND LOADING REQUIREMENTS

DIVISION I.

GENERAL PROVISIONS

21.41.110 Purpose.

The purpose of this Chapter is to establish regulations for parking and loading to ensure that vehicle traffic and loading activities associated with a use do not interfere with circulation on public rights-of-way or circulation within required parking areas and to ensure that an adequate number of parking spaces is provided to serve the use of a specific site without causing traffic congestion.

(Ord. C-6533 § 1 (part), 1988)

21.41.120 Applicability.

The provisions of this Chapter shall apply to all proposed and established land uses, buildings and structures and shall be the minimum standards for all off-street parking and loading.

(Ord. C-6533 § 1 (part), 1988)

21.41.140 Building permit.

An application for a building permit shall include a plot plan indicating the location of the proposed parking and loading, all structures on the lot, the location of all public improvements in the adjoining

right-of-way, the location of driveways and curb cuts on adjoining properties and such other information as is requested to properly evaluate the adequacy of the required parking and the suitability of curb cuts to the site.

A. **Residential Uses.** In all new residential developments, all required parking shall be provided on the same site as the dwelling unit or units.

B. **Other Uses.** Required parking may be located on an adjacent lot, provided the parking lot conforms to Section 21.41.222 of this Chapter. If any required parking is not located on the same lot as the proposed construction, the applicant shall submit an affidavit, signed by the owner of the lot on which the parking is proposed, indicating an irrevocable right to use the lot for the parking.

(Ord. C-6895 § 19, 1991: Ord. C-6533 § 1 (part), 1988)

21.41.150 Maintenance.

All parking facilities and loading areas shall be maintained in a neat and orderly condition and shall be clear of obstruction by any object including appliances, hobby equipment, storage of nonoperational vehicles, and the like.

(Ord. C-6533 § 1 (part), 1988)

21.41.160 New construction and uses.

All new construction and new uses of land shall provide off-street parking and loading according to the provisions and requirements of this Chapter.

(Ord. C-6533 § 1 (part), 1988)

21.41.165 Change of use for building more than ten years old.

A. No new parking shall be required for changes of use of any existing square footage within a building more than ten (10) years old.

B. This Section shall not apply to the following uses: hotel, motel, inn, bed and breakfast inn, other transient lodging, and event center.

(ORD-24-0033 § 5, 2024)

21.41.170 Established uses.

The provision and maintenance of required off-street parking and loading facilities and areas, and of area available to the owner or user of real property for meeting minimum required parking standards, shall be a continuing obligation of the property owner and user, therefore, the number of existing off-street parking and loading spaces shall not be reduced, or in any other way modified, below the standards required by the Zoning Regulations except as otherwise provided by this Section, or elsewhere in the Zoning Regulations, or as required by the Building Official to comply with disabled access or electric vehicle charging parking space requirements.

A. **Reduction prohibited.** An owner or user of real property containing uses for which off-street parking or loading facilities or areas are required by the Zoning Regulations, shall not reduce,

diminish, or eliminate existing required off-street parking or loading facilities or areas under the ownership or control of such owner or user, whether on the same lot or on a separate lot from the use requiring such off-street parking or loading facilities or area; nor shall an owner or user sell, transfer, lease, or otherwise make unavailable for such required off-street parking or loading facilities or area any portion of the lot or of any adjacent lot under the same ownership or control, if the same is necessary for and available to satisfy, in whole or in part, the off-street parking or loading requirements imposed by the Zoning Regulations.

B. **Exception for unbundled parking.** In accordance with Section 1947.1 of the California Civil Code, as amended, for a residential building containing 16 or more dwelling units, for which the initial certificate of occupancy is issued on or after January 1, 2025, and for which parking is unbundled from the price of rent as required by Civil Code Section 1947.1, any parking space not rented to the tenant of a dwelling unit to which it would otherwise be bundled, may be rented to the tenant of another residential dwelling unit or non-residential tenant space on the same lot or parcel, or to the tenant of another residential dwelling unit on another lot or parcel if the off-site location complies with the distance requirement of Subsection 21.41.222.A. However, each tenant shall have the right of first refusal to rent the parking space which would otherwise be bundled to the tenant's unit. This exception shall not apply to the following circumstances:

1. A residential property or unit with an individual garage that is functionally a part of the property or unit, including, but not limited to, single-family dwellings, duplexes, townhouses and row houses.

2. A housing development of which 100 percent of its units, exclusive of any manager's unit or units, are restricted by deed, regulatory restriction contained in an agreement with a governmental agency, or other recorded document as affordable housing for persons and families of low or moderate income, as defined in Section 50093 of the California Health and Safety Code.

3. A housing development that receives low-income housing tax credits pursuant to Section 42 of the Internal Revenue Code (26 U.S.C. Sec.42).

4. A housing development that is financed with tax-exempt bonds pursuant to a program administered by the California Housing Finance Agency.

(ORD-24-0033 § 18, 2024)

21.41.175 Exemption from parking minimums.

No minimum number of vehicular parking spaces shall be required by the Zoning Regulations or any Planned Development District or Specific Plan for any lot or parcel that is within, or partially within, the Parking Exempt Area, as established in Section 21.41.180, subject to the following exceptions and additional requirements:

A. **Vehicular parking only.** This Section shall apply only to vehicular (automobile) parking requirements.

B. **Continuing applicability of development standards.** This Section shall in no way lessen or reduce the applicability of any other zoning development standard specified for parking and loading in the Zoning Regulations, including but not limited to parking space dimensions, turning radius, and drive aisle and driveway widths.

C. **Continuing applicability of EV charging and ADA requirements.** For any multi-family residential or non-residential project, this Section shall not reduce, eliminate, or preclude the enforcement of any requirement for the provision of electric-vehicle (EV) parking spaces or infrastructure ("EV charger," "EV space," "EV charging station," and "EV supply equipment," as these terms are used by the Building Official, as amended from time to time), or parking spaces that are accessible to persons with disabilities, where such spaces otherwise would be required.

D. **Inapplicability to specific uses.** This Section shall not apply to the following uses: hotel, motel, inn, bed and breakfast inn, and other transient lodging.

E. **Event center employee and worker parking.** For an event center, parking spaces shall be provided for employees and other workers as required by the Zoning Regulations.

F. **Inapplicability by findings.** This Section shall not apply to any project for which the City makes written findings within 30 days of receipt of a completed application, that not imposing or enforcing parking and/or loading minimums would have a substantially negative impact, supported by a preponderance of evidence in the record, on any one of items 1 through 3 below:

1. The City's ability to meet its share of the regional housing need in accordance with Section 65584 of the Cal. Gov't Code for low- and very low-income households.

2. The City's ability to meet any special housing needs for the elderly or persons with disabilities identified in the analysis required pursuant to paragraph (7) of subdivision (a) of Section 65583 of the Cal. Gov't Code.

3. Existing residential or commercial parking within one-half mile of the proposed project.

4. This Subsection 21.41.175.F shall not apply to housing projects in any of the following circumstances:

    a. The proposed project dedicates a minimum of 20 percent of the total number of housing units to very low, low, or moderate-income households, students, the elderly, or persons with disabilities.

    b. The proposed project contains fewer than 20 dwelling units.

    c. The proposed project is subject to parking reductions based on the provisions of any other applicable law.

G. **Inapplicability to contractual obligations.** This Section shall not apply to parking requirements for non-residential uses if it would conflict with an existing contractual obligation of the City that was executed before January 1, 2023, provided that all of the non-residential parking is shared with the public. This exemption also shall apply to any contractual obligation amended on or after

January 1, 2023, provided that the amendment(s) do not increase the non-residential parking requirement. A project also may build or provide additional parking that is not shared with the public for purposes of this Subsection 21.41.175.G.

H. **Requirements applicable to voluntary parking.** For any project to which this Section applies, any parking or loading space that is provided above and beyond the requirements of this Section shall be subject to any other applicable requirements under the Zoning Regulations, including but not limited to Transportation Demand Management (TDM) measures, alternate mobility requirements, project conditions of approval, and the like, except that any parking space provided above and beyond the requirements of this Section shall not be required to be provided to residents free of charge.

(ORD-24-0033 § 6, 2024)

21.41.180 Parking Exempt Area Map adopted.

There shall be a Parking Exempt Area Map depicting the geographic area of the City to which Section 21.41.175 applies. The Zoning Administrator shall direct the production and maintenance of this map in accordance with Cal. Gov't Code Section 65863.2 (aka AB 2097), as amended, and shall update this map periodically or as necessary. The Parking Exempt Area Map shall be on file in the office of the Department of Community Development, and said map and all notations, references and other information shown on it, are incorporated by reference and shall be deemed as much a part of this Title as if the matters and information set forth by the map were fully described in this Chapter.

(ORD-24-0033 § 7, 2024)

21.41.185 Exemption from loading minimums.

No minimum number of loading spaces shall be required by the Zoning Regulations or any Planned Development District or Specific Plan for any lot or parcel that is within, or partially within, the Parking Exempt Area, as established in Section 21.41.180, in the same manner as exemption from a minimum number of parking spaces is set forth in Section 21.41.175 and with the same exceptions and additional requirements, and subject to the following additional exceptions and additional requirements:

A. **Inapplicability to specific uses.** This Section shall not apply to the following uses:

1. Daycare, preschool, or elementary school, except that on-street loading spaces may be substituted for the required off-street loading spaces if approved by the Director of Public Works or City Traffic Engineer,

2. Hotel, motel, inn, bed and breakfast inn, other transient lodging,

3. Manufacturing, packing, industrial assembly, or warehousing uses greater than 3,000 sq. ft.,

4. Medical or dental office, or hospital, if more than 50 off-street parking spaces would be required by the Zoning Regulations before any exceptions,

5. Public assembly,

6. Retail, service, or office commercial if more than 50 off-street parking spaces would be required by Zoning Regulations before any exceptions,

7. Supermarket, grocery-, drug-, variety-, department-, furniture-, hardware- or appliance store, or shopping center greater than 10,000 sq. ft. GFA, or

8. Event center.

B. **Loading required before additional parking.**

1. Required loading spaces shall be provided prior to addition or designation of any parking spaces beyond the minimum parking requirements of this Chapter, after exceptions.

2. If the site, except event centers, has no off-street parking spaces to be converted to loading spaces after provision of the minimum parking requirements of this Chapter, after exceptions, the applicant shall request the Director of Public Works to designate the appropriate type and number or length of curb loading space(s) in the public right-of-way adjacent to the lot or parcel, if feasible.

(ORD-24-0033 § 8, 2024)

21.41.190 Driveway and curb cut replacement after parking removal.

If existing parking and loading spaces are completely removed (e.g., demolition of a garage or removal of parking area) from a lot or parcel under the authority of Sections 21.41.175 and/or 21.41.185, then any driveway and other paved area that served the removed parking or loading also shall be removed, and landscaping shall be installed in accordance with the requirements of Chapter 21.42. Any curb cut(s) that served the driveway(s) shall be closed and reconstructed to full-height curb and gutter, as required by Section 21.41.253. This Section shall not apply if the reason for removal of the parking or loading spaces is for conversion of the space in question to an Accessory Dwelling Unit, Junior Accessory Dwelling Unit, or Two-Unit Residential Development (aka SB 9 unit).

(ORD-24-0033 § 9, 2024)

DIVISION II.

PARKING REGULATIONS

21.41.206 Parking—Nonconforming.

Nonconforming parking shall comply with the provisions of Chapter 21.27, Nonconformities, of this Title.

(Ord. C-7663 § 26, 1999: Ord. C-6533 § 1 (part), 1988)

21.41.209 Parking—Rental or sale of residential parking.

Required parking for all residential uses shall be considered an inseparable part of a residential unit or development, and required parking shall not be rented or sold, except as provided by Section 21.41.170.

(ORD-24-0033 § 19, 2024; Ord. C-6533 § 1 (part), 1988)

21.41.213 Parking—Garage required.

A. **Garage Required.** In all residential districts, all required parking spaces shall be provided within an enclosed garage in accordance with the development standards as specified in Section 21.31.245 (garage).

B. **Exception.** Open parking may be permitted through site plan review for projects of forty (40) units or more at densities of twenty-nine (29) units per acre or less. If exceptions are granted to permit open parking, open parking shall comply with the same development standards as a garage.

(Ord. C-6933 § 30, 1991: Ord. C-6533 § 1 (part), 1988)

21.41.216 Parking—Required number of spaces.

Tables 41-1A, 41-1B and 41-1C set forth the number of parking spaces required for specific land uses. Parking spaces required for multiple uses on a lot shall be calculated separately for each use, and the parking required shall be the sum of all that required for all such uses, unless otherwise permitted by Section 21.41.223 of this Chapter. In calculating the number of required spaces, fractional numbers shall be rounded up to the closest whole number.

(Ord. C-7550 § 9, 1998; Ord. C-7326 § 18, 1995; Ord. C-7247 §§ 18-20, 1994; Ord. C-7127 § 4, 1993; Ord. C-7032 § 28, 1992; Ord. C-6933 § 31, 1991; Ord. C-6755 § 2, 1990; Ord. C-6684 §§ 27, 28, 1990; Ord. C-6533 § 1 (part), 1988)

Table 41-1A
Required Number of Parking Spaces for Residential Uses

Number of Units/Bedrooms[e]	Number of Spaces per Unit[a]	Coastal Zone Only
Unit Parking		
-0 bedrooms (not more than 450 sq. ft.)	1.00	1.00
-1 or more bedrooms (or zero bedrooms, 451 sq. ft. or more)	1.50	2.00
-2 bedrooms or more	2.00	2.00
Guest parking [b][c][d][e]	1 space/4 units	1 space/4 units

(a) In the RM district, not more than 11/2 spaces per unit shall be required.

(b) The number of guest parking spaces indicated above in the table shall be the minimum number of guest parking spaces required in any residential district.

(c) Guest parking shall be required when 4 or more detached or attached dwelling units (including existing units on the site) are proposed as one development.

(d) When Allowed On Street. On-street parking abutting the lot shall be considered as guest parking according to the standards for parallel parking spaces when all access to on-site parking is taken from an alley and the site is outside of the parking-impacted area. On-street parking abutting the site may not be considered as guest parking when the street is a major, minor or secondary highway.

(e) In calculating required parking spaces, all rooms other than 1 living room, 1 dining room, 1 kitchen, and bathrooms shall be calculated as bedrooms.

Table 41-1B
Required Number of Parking Spaces for Special Residential Uses

Use	Required Number of Spaces
1. Handicapped[(a)]	
-Low rent	1 space per each 2 bedrooms
-Market rent	1 space per each 1 bedroom
2. Senior citizen [(a)]	
-Low rent	1 space per each 2 bedrooms
-Market rent	1 space per each 1 bedroom
-Congregate care, low rent	1 space per each 2 bedrooms
-Congregate care, market rent	1 space per each 1 bedroom
3. Convalescent hospital	1.2 spaces per room, or 0.6 space per bed, whichever is greater, plus 5 per 1,000 SF-GFA for medical office in building
4. Residential care facility	1 space per bed
5. Fraternity, sorority, dormitory	1 space per bed
6. Monastery, convent, communal, religious home and other special group residences	1 space per each 2 beds

(a) The Planning Commission may further reduce the parking standards to 1 space per 3 bedrooms if it finds that the neighborhoods in which the facility is proposed has ample, readily available on-street parking or is well-served by public transportation and a concentration of senior services.

Table 41-1C
Required Number of Parking Spaces for Commercial, Industrial/Manufacturing and All Other Uses

Use	Required Number of Spaces
Retail, Ready to Eat Restaurant and Personal Service Uses or Stores	
1. Community, regional or neighborhood shopping centers	5 per 1,000 SF-GFA plus parking for a detached fast-food restaurant calculated separately. However, shopping centers greater than 150,000 square feet in size may receive approval of a lower parking ratio pursuant to Section 21.41.219
2. Merchandise mall	10 per 1,000 SF-GFA
3. Open flea market, swap meet	4 per 1,000 GLA of display area
4. Other retail or personal service use,store or shop (commercial clusters)	4 per 1,000 SF-GFA
5. Automobile sales	2 spaces per 1,000 GFA of interior showroom,1 per 1,000 GLA of outdoor display area, pIus 4 per 1,000 GFA for accessory office and repair service area
6. Ready to eat restaurant	4 per 1,000 GFA
7. Furniture store	2 per 1,000 GFA
Automobile/Motor Vehicles	
1. Car wash (self-service/hose and hand dry or belt driven)	2 spaces per wash bay (for purposes of belt driven facilities, the conveyor length shall be divided by 18 to determine the number of wash bays)

Table 41-1C
Required Number of Parking Spaces for Commercial, Industrial/Manufacturing and All Other Uses (Continued)

Use	Required Number of Spaces
2. Car wash (full-service)	1 space per wash bay (conveyor length divided by 18), plus retail and office space calculated separately

Use	Required Number of Spaces
3. Service station or service garage	For a service station (gas dispensing only), 1 pace per pump island. For a service station with accessory retail, office, and/or auto repair, 1 space per pump island, plus 4 per 1,000 GFA for accessory retail, office and auto repair area. For a service garage (auto repair), 3 plus 4 per 1,000 GFA
Office	
1. Banks, savings and loans	5 per 1,000 GFA (no additional parking is required for accessory automatic teller machines)
2. Medical or dental office, clinic, urgent care, outpatient surgical center or similar medical uses	4 per 1,000 GFA
3. Professional or unspecified office (no additional parking for restaurants or medical offices in office building if less than 10 percent of building area)	4 per 1,000 GFA up to 20,000 GFA and 2 per 1,000 GFA for GFA more than 20,000, or 1 space for each company vehicle exceeding 5, whichever is greater
Restaurants and Bars	
1. Detached fast food restaurant (located on a separate pad)	5 spaces plus 1 per 3 seats in dining area or 10 per 1,000 GFA whichever is greater
2. Dinner restaurant	10 per 1,000 GFA of dining areas plus 20 per 1,000 GFA for tavern area and 25 per 1,000 for dance floor
3. Outdoor dining at an established restaurant	0 space for 250 GLA or less, plus 5 per 1,000 GLA for 250 GLA or more, except for outdoor dining located in the CB zone, and for outdoor dining located on public sidewalks, no additional parking is required (See Footnote A)
4. Tavern	20 per 1,000 SF-GFA

Use	Required Number of Spaces	
Alcoholic Beverage Manufacturing and Accessory Tasting Room	**Commercial Zones**	**Industrial Zones**
1. Manufacturing/Brewing area	None	2 spaces per 1,000 SF GFA of ABM facility
2. Accessory Tasting Room area	10 spaces per 1,000 SF GFA of Accessory Tasting Room only	
3. Office space	If greater than or equal to 25% of total GFA 4 spaces per 1,000 SF GFA; if less than 25% total GFA, the area shall be included in the manufacturing/brewing area calculation	

Use	Required Number of Spaces
Public Assembly	
1. Assembly hall, religious assembly, movie theater or other public assembly area with fixed seats	For assembly uses, 1 per every 3.3 fixed seats. For theaters, 1 per every 3.3 fixed seats, plus a passenger loading and unloading zone (if the fixed seat portion of the use is not 75% or greater, separate parking ratios shall be applied for accessory uses)
2. Meeting hall, banquet hall, religious assembly, or other public assembly area without fixed seats	20 per 1,000 GFA (if the assembly area is not 75% or greater, separate parking ratios shall be applied for accessory uses)
3. Elementary school, secondary school and day-care center	For elementary schools, 2 per classroom, plus 2 loading and unloading spaces and auditorium or stadium calculated separately. For high schools, 7 per classroom, plus auditorium or stadium calculated separately. For daycare, 1 space per every 10 children, plus 2 loading and unloading spaces.

Table 41-1C
Required Number of Parking Spaces for Commercial, Industrial/Manufacturing and All Other Uses (Continued)

Use	Required Number of Spaces
4. Publicly run post-secondary school	See 21.45.151 (applies to change of use only)

Use	Required Number of Spaces
5. Hotel (guestrooms with direct access from an interior hallway) and motel (guestrooms with direct access to the exterior)	For hotel, 1 per guestroom, plus parking figured separately for banquet rooms, meeting rooms, restaurant and gift shops, plus 2 loading and unloading spaces. For motel, same as hotel, plus 2 parking spaces for the motel managers unit
6. Hospitals, convalescent hospitals	For hospitals, 2 spaces per bed. For convalescent hospitals, 1 per every 3 beds
7. Library, museum	4 per 1,000 GFA, plus 1 bus parking stall for each 5,000 sq. ft. open to public; plus passenger loading and unloading area shall be provided
8. Trade or vocational school	20 per 1,000 GFA or 1 per 3.3 fixed seats, whichever is greater
Recreation	
1. Amusement arcade	4 per 1,000 SF except in a tavern, then 20 per 1,000 SF
2. Amusement/Entertainment Facilities	4 per 1,000 SF-GFA
3. Athletic club	5 spaces plus 4 spaces 1,000 SF-GFA; or 1 per 3 spectator seats, whichever is greater, plus 20 per 1,000 SF-GFA for exercise floors
4. Basketball courts, volleyball courts	5 per court or 1 per 3 spectator seats, whichever is greater
5. Bowling alley	5 spaces plus 4 spaces per alley, or 1 per 3 spectator seats, whichever is greater
6. Commercial horse stables and horse riding schools	1 for each 5 stalls
7. Dancing, dance hall, disco, skating rink	25 per 1,000 SF-GFA, excluding kitchen
8. Golf course	3 per hole, or spaces required for restaurant, whichever is greater
9. Golf range, batting cage, tennis alley and the like	1 per tee, cage or alley and the like
10. Miniature golf course	2 per hole
11. Open recreation	1 per 1,000 SF-GLA
12. Passive park use	2 per acre-GLA
13. Pool or billiard hall	2 spaces plus 5 spaces per 1,000 SF-GFA
14. Tennis courts, racquetball courts, handball courts and the like	3 spaces plus 3 spaces per court or 1 per 3 spectator seats, whichever is greater
Industrial/Manufacturing	
1. Service yards, storage yards and contractor yards	1 space per every 5,000 sq. ft. of yard area, plus office areas are calculated separately (minimum of 2 spaces shall be provided)
2. Manufacturing, processing, packing, assembly and the like	2 per 1,000 SF-GFA (office area greater than 25% is calculated separately)
3. Mini-warehouse (personal storage)	3 spaces plus 1 per 100 units
4. Research laboratories	3 per 1,000 SF-GFA
5. Warehouse, airplane hanger, and mechanical equipment buildings	1 per 1,000 GFA (office area greater than 25% is calculated separately)
6. Wholesale sales and distribution center	3 per 1,000 GFA (office area greater than 25% is calculated separately)

Abbreviations: SF = square feet
GFA = gross floor area (excludes utility and elevator cores, stairwells and restrooms)
GLA = gross land area in square feet

NOTES: (A) Outdoor dining located on public sidewalks require approval of an encroachment permit issued by the Department of Public Works. Further, within the City's Coastal Zone, a coastal permit is required for all outdoor dining located on public rights-of-way.

(ORD-20-0040 § 3, 2020; ORD-20-0018 § 19, 2020; ORD-19-0028 § 21, 2019; ORD-19-0006 § 1, 2019; ORD-16-0025 § 1, 2016; ORD-15-0010 § 3, 2015)

21.41.219 Parking requirements for uses not specified and for large shopping centers.

The requirement for a use not specifically mentioned in Tables 41-1A, 41-1B and 41-1C shall be the same as for a use specified which has similar traffic generating characteristics. The Zoning Administrator shall determine what constitutes similar traffic generating characteristics. For unique uses, the Zoning Administrator may require a parking demand study. The parking demand study should be prepared by an independent traffic engineer licensed by the State of California at the developer's expense and must be submitted to the Director of Planning and Building and the Director of Public Works for review and approval. Shopping centers of one hundred fifty thousand (150,000) square feet or more may submit a parking demand study, as outlined above, in order to reduce the standard shopping center ratio.

(Ord. C-7326 § 19, 1995: Ord. C-6533 § 1 (part), 1988)

21.41.221 On-site parking required—Residential uses.

For all residential uses, all required off-street parking shall be provided on the project site, except certain guest parking may be permitted on the street as indicated in Table 41-1A.

(Ord. C-6533 § 1 (part), 1988)

21.41.222 Off-site parking.

For commercial, industrial and institutional use, required parking may be provided off-site according to the following limitations:

A. **Distance from Use.** All off-site parking shall be located within six hundred feet (600′) of the use it serves, unless otherwise provided in the Zoning Regulations. This distance shall be measured from the middle of the parking facility to the entrance of the use (main front door of the building, or main entrance to the lot or parcel if there is no building), using the shortest route legally available to a pedestrian. This distance requirement shall not apply within the former downtown redevelopment project area, the former westside industrial redevelopment project area, parking facilities built to service the former redevelopment project areas, or in parking districts.

B. **Guaranteed Permanence.** All off-site parking shall be guaranteed to remain as parking by a deed restriction to which the City is a party. This guarantee is not required within the former downtown redevelopment project area, the former westside industrial redevelopment project area, or within a parking district.

C. **Signing.** An illuminated sign, not less than six (6) square feet in area, visible from the public right-of-way and in conformance with Chapter 21.44, shall be placed on each street frontage of both the business location and the off-site parking location, stating the following:

1. **At the business:** The availability and address or location of the off-site parking for the business, and

2. **At the off-site parking location:** The name and address or location of the business for which the parking is provided.

(ORD-24-0033 § 20, 2024; Ord. C-6933 § 32, 1991; Ord. C-6595 § 25, 1989)

21.41.223 Adjustment of parking requirements.

The minimum number of required parking spaces for a nonresidential use may be reduced subject to approval of an Administrative Use Permit (AUP) when the Zoning Administrator finds that adequate parking, circulation and access are provided for customers, clients, visitors and employees. Adjustments shall be limited to one or more of the methods set forth in items A, B, and C below:

A. **Parking Management Plan.** A parking management plan may be approved by the Zoning Administrator if the applicant provides Transportation Demand Management (TDM) measures to reduce vehicular parking demand as specified in Subsection 21.41.223.D. The parking management plan shall include the following:

1. Plans shall show how the alternative mode(s) will be implemented, the permanency and extent of such mode(s), the number of vehicles the mode(s) will replace, and other pertinent information requested by the Director of Community Development or the Zoning Administrator;

2. A covenant deemed acceptable by the Zoning Administrator shall be duly recorded, with the City a party thereto. This covenant shall designate the method by which adequate parking will be provided as required by this Subsection 21.41.223.A.

B. **Shared Parking Agreement.** A shared parking agreement may be approved by the Zoning Administrator. When two (2) or more uses share a parking facility, and when demonstrated by a signed affidavit that the hours of their demand for parking do not overlap, or only partially overlap, then the parking requirement may be reduced by the Zoning Administrator. A covenant deemed acceptable by the Zoning Administrator shall be duly recorded, with the City a party thereto.

C. **Parking Study.** An independent parking study, provided by the applicant and prepared by a licensed traffic engineer, may be accepted by the Zoning Administrator. The parking study shall substantiate or justify a request for reduction in parking, or outline alternative methods to provide adequate parking, circulation and access for a particular development. The parking study shall be subject to review by the Zoning Administrator and City Traffic Engineer to determine the merits of the alternative strategies.

D. Transportation Demand Management (TDM) measures provided for purposes of this Section shall include the following:

1. For projects under 25,000 sq. ft. total GFA (and including GLA of outdoor uses), the following shall be provided:

a. Bicycle parking:

(i) For retail, personal service, medical, professional service, restaurant, bar/tavern, health/fitness/dance, and similar uses with a regular traffic of customers, one short-term on-site bicycle parking space may be substituted for one auto parking space, up to a maximum of 20% of the required auto parking spaces.

(ii) For professional office, industrial, and other uses with no or only incidental traffic of customers, one long-term on-site bicycle parking space may be substituted for one auto parking space, up to a maximum of 30% of the required auto parking spaces.

b. Bicycle route and facility information, including regional/local bicycle maps and bicycle safety information,

c. Current maps, routes and schedules for public transit routes serving the site,

d. Promotional materials for taxi and/or ridesharing services, in a location most visible to the likely users, within the project building or on the project site,

e. Varied hours of work shifts, subsidized transit passes, or similar employee benefit measures to offset demand for employee parking.

f. All sidewalks, curb and gutter, and driveway aprons/curb cuts in the public right-of-way adjacent to the project site shall be upgraded to meet the current requirements of the Americans with Disabilities Act (ADA), to the satisfaction of the Director of Public Works,

g. Any cracked, deteriorated, or uplifted/depressed sections of sidewalk pavers and curb and gutter along all public rights-of-way adjacent to the project site shall be reconstructed to the satisfaction of the Director of Public Works, and

h. Alternative TDM measures may be proposed and analyzed through a Parking Impact Study and approved as set forth in Subsection 21.41.223.C (Parking Study).

2. For projects of 25,000 sq. ft. or greater total GFA (and including GLA of outdoor uses), the following shall be provided:

a. The requirements of Subsection 21.41.223.D.1 shall be met,

b. The TDM requirements of Chapter 21.64 (summarized in Table 25-1) shall be met,

c. An off-site parking or drop-off area for electric scooters, e-bikes, or a bike-share service shall be located within 300 feet of the project building entrance using the shortest legal route available to a pedestrian. If none is present, the applicant shall submit a request to the Director of Public Works for the establishment or designation of one of said facilities.

d. Any nonconforming driveway aprons/curb cuts shall be reconstructed to conform to the requirements of Chapter 21.41 to the greatest extent feasible, to the satisfaction of the Director of Community Development and the Director of Public Works.

(ORD-24-0033 § 21, 2024; Ord. C-7247 § 21, 1994; Ord. C-6684 § 29, 1990; Ord. C-6533 § 1 (part), 1988)

21.41.224 Parking District.

When the property owners of a contiguous commercial or mixed-use district have established a parking district pursuant to the laws of the State of California, that parking district may develop a parking plan

for the district. When such a plan, along with the financial arrangements to implement the plan, has been approved by the Planning Commission, or, on appeal, by the City Council, such plan shall supersede the parking requirements specified in the Zoning Regulations.

(ORD-24-0033 § 10, 2024)

21.41.226 Special parking requirements for CNP district.

The number of required parking spaces for uses in the CNP zone district are specified as follows:

A. In area D of the coastal zone (Second Street, between Livingston Drive and Bayshore Avenue), the parking in the CNP district shall be one-half (1/2) of the parking required in Chapter 21.41, Table 41-1C. In all other areas of the coastal zone and outside the coastal zone, parking in the CNP district shall be as required in Chapter 21.41, Table 41-1C. Any new parking provided, or reconfiguration of existing parking facilities, in area D of the coastal zone can utilize tandem parking subject to the provisions of Subsection 21.41.235.B of the tandem parking regulations.

1. **Restaurants.** The one-half (1/2) parking standard shall not apply to restaurants (new and reuse/conversion of existing nonrestaurant lease spaces) which shall conform to full parking standards. This Subsection does not apply to ready to eat restaurants (as defined in Section 21.15.2332), which may utilize the one-half (1/2) parking standard.

2. **Determination of nonconforming rights.** Owners of properties with nonconforming parking rights within area D of the coastal zone may apply for site plan review to obtain a determination of nonconforming parking rights. Such determination will establish the number of nonconforming spaces that applies to the property at the time of the request and will allow the property to maintain nonconforming parking rights to the established number of spaces regardless of change in use of the existing buildings.

B. **Outdoor dining.** In area D of the coastal zone (Second Street, between Livingston and Bayshore), outdoor dining on private property shall require the same parking as required for indoor dining.

C. **Within established parking district.** If the site to be developed or expanded is located within a parking district established pursuant to the laws of the State of California or local ordinances, the required parking spaces shall be provided as follows:

1. For a new development on a lot with gross lot area less than five thousand (5,000) square feet, or for any expansion of an existing building, the development may, in lieu of providing all or part of required off-street parking on-site or within six hundred feet (600′) of the site, pay a fee to the parking district based on the cost of providing such parking. The amount of the in lieu fee shall be established by the City Council by resolution and shall be reviewed periodically to assure its adequacy to cover the cost of providing parking under this provision.

2. For a new development on a lot with gross lot area of five thousand (5,000) square feet or more, a minimum of fifty percent (50%) of the required parking shall be provided on the site, or within six hundred feet (600′) of the site. The remaining required parking may be provided by an in lieu fee as described above.

3. All existing parking provided for or leased by any business shall hereinafter be the minimum required for the existing use on that site. If the parking now required exceeds that established pursuant to Subsection 21.41.226.A, the parking now provided may not be reduced below that required in Table 41-1C.

(ORD-05-0039 § 1, 2005; Ord. C-7777 § 2, 2001; Ord. C-7619 § 4, 1999; Ord. C-7247 § 22, 1994: Ord. C-6684 § 30, 1990: Ord. C-6533 § 1 (part), 1988)

21.41.228 In lieu fees.

Fees may be paid in lieu of providing the required on-site or off-site parking provided:

A. The site is located in an established parking district or redevelopment project area;

B. The in lieu fee represents the estimated current cost of providing the parking place in the applicable district. Such fees shall be adopted by City Council resolution, and shall be updated each two (2) years.

(Ord. C-6595 § 26, 1989)

21.41.229 Parking—Residential uses in commercial zones.

Residential uses in commercial zones shall provide parking spaces as provided for in Tables 41-1A and 41-1B as applicable.

(Ord. C-6533 § 1 (part), 1988)

21.41.231 Parking—Size of spaces.

Parking spaces shall be of the sizes and meet such other requirements as set forth in Table 41-2 and as illustrated in Figures 41-1A, 41-1B, 41-1C and 41-1D.

(Ord. C-7040 § 2, 1992; Ord. C-6895 § 20, 1991: Ord. C-6533 § 1 (part), 1988)

21.41.232 Parking—Electric vehicle space and charging station requirements.

Outside the coastal zone, parking shall comply with Chapter 18.47 of the Long Beach Municipal Code with regard to electric vehicle space and charging station requirements. In the coastal zone, for a building containing three or more dwelling units or a hotel that is constructed, demolished or rebuilt a building site, at least twenty-five percent (25%) of the total number of parking spaces, but in no case less than one, shall be EV spaces capable of supporting future EVSE and five percent (5%) of the total number of parking spaces but in no case less than one (1), shall have EV chargers installed. Calculations for the required number of EV spaces shall be rounded up to the nearest whole number.

(ORD-19-0007 § 3, 2019; ORD-16-0028 § 13, 2016)

21.41.233 Tandem parking—Residential uses.

A. Tandem parking spaces shall be prohibited for required parking except:

1. For valet parking with approval through site plan review;

2. For low income units when projects include ten percent (10%) or more of the units as on-site low income units;

3. For the provision of required parking for an accessory dwelling unit, and for required replacement of parking for the primary dwelling when a garage is converted or existing parking spaces are otherwise eliminated to create an accessory dwelling unit.

B. For tandem parking allowed in Subsection 21.41.233.A.2, the following standards shall be complied with:

1. Not more than two (2) spaces shall be involved in the tandem arrangement;

2. Both spaces in the tandem arrangement shall be assigned to the same dwelling unit;

3. Handicapped and guest parking shall not be in tandem;

4. Tandem parking shall not be allowed in a parking garage of less than ten (10) parking spaces or when the full turning radius for the tandem parking is not within the garage.

C. For tandem parking allowed in Subsection 21.41.233.A.3 for an accessory dwelling unit, up to three (3) spaces may be in tandem.

(ORD-17-0031 §§ 18, 19, 2017; Ord. C-7607 §§ 3, 17, 1999; Ord. C-6933 § 33, 1991: Ord. C-6684 § 31, 1990; Ord. C-6593 § 1, 1989: Ord. C-6533 § 1 (part), 1988)

Table 41-2
MINIMUM PARKING SPACE SIZES

All Uses	Size	Aisle Width	Proportion
Compact	8 feet by 15 feet	21 feet (all zones except R-1-S, R-2-S, R-2-I zones)	Residential—not more than 50 percent Nonresidential—none
Standard	8 feet 6 inches by 18 feet	24 feet (all zones except R-1-S, R-2-S, R-2-I zones) 23 feet (R-1-S, R-2-S, R-2-I zones)	
Handicapped	14 feet by 18 feet	24 feet	See State requirements (title 24, part 2, Chapters 2-71 of the California Administrative Code)

21.41.235 Tandem parking—Industrial/manufacturing uses and area D of the coastal zone (Second Street, between Livingston Drive and Bayshore Avenue).

A. Tandem parking serving an industrial or manufacturing use shall only be in areas specifically designated for employee long-term parking. In area D of the coastal zone (Second Street, between

Livingston Drive and Bayshore Avenue) the tandem parking shall be for general use of employees and customers. Such parking shall only be located on the same site as the use for which the parking is provided.

B. Tandem parking, where permitted, shall comply with the following standards:

1. Not more than two (2) spaces shall be allowed in tandem.

2. Handicapped parking shall not be in tandem.

3. No more than twenty-five percent (25%) of the required parking spaces shall be permitted to be in tandem.

(Ord. C-7619 § 5, 1999: Ord. C-7360 § 13, 1995)

21.41.239 Parking fee—Nonresidential use.

A fee may be charged for required parking for nonresidential uses.

(Ord. C-6533 § 1 (part), 1988)

21.41.243 Parking lot layout.

Figures 41-1A, 41-1B, 41-1C, and 41-1D illustrate typical parking lot layouts and the minimum dimensions required for each type of layout. Development standards for parking lots are set forth in this Section and Sections 21.41.251 through 21.41.269.

A. **Turning radii.** Table 41-3 and figure 41-1E establish minimum turning radii for various parking space types and parking lot layouts. Turning radii may be reduced by one foot (1′) for each additional foot that is added to the width of the garage space, provided that:

1. The garage door width is widened by an equal amount; and

2. The maximum turning radii reduction is two feet (2′).

B. **Continuous circulation.** All lots containing one hundred (100) or more spaces shall provide continuous vehicle circulation. Dead end aisles are prohibited in such lots.

C. **Passenger loading.** All parking lots containing one hundred (100) or more spaces shall provide an eight foot (8′) wide passenger drop off lane adjoining the building entrance.

D. **Pedestrian walkway.** A covered pedestrian walkway shall be provided adjoining the building entrance. The walkway shall be at least four feet (4′) wide and shall provide direct access to a public sidewalk.

E. **Slope.** Parking area shall not have a slope more than one foot (1′) vertical for each sixteen feet (16′) of horizontal dimension perpendicular to the vehicle parking.

F. **Pedestrian crossing.** All parking lots containing one hundred (100) or more spaces shall provide pedestrian crossings outside of vehicle circulation areas. The crossings shall be at least six feet (6′) wide and shall link the building to the street property line.

G. **Drive-thru lanes.** No parking space shall be located so that it is accessible only via a drive-thru queuing lane.

H. **Parking Exits.** Parking must be designed to provide for exiting without backing into the street. However, backing into the street may be permitted in the IM and IG districts on lots five thousand (5,000) square feet or less in size where parking area access occurs onto a local or collector street, as designated in the transportation element of the general plan. Such parking area access shall be subject to the approval of the City Engineer and the Director of Planning and Building.

(Ord. C-7360 § 5, 1995; Ord. C-7326 § 20, 1995: Ord. C-6684 § 32, 1990; Ord. C-6533 § 1 (part), 1988)

Table 41-3
REQUIRED TURNING RADII
Minimum Radius

Type of Parking Space	90 Degree Parking	All Other Parking
1. Standard and handicapped	24 feet (all zones except R-1-S, R-2-S, R-2-I zones) 23 feet (R-1-S, R-2-S, R-2-I zones only)	24 feet or less, as indicated in figures 41-1A, 41-1B and 41-1C
2. Compact	21 feet (all zones except R-1-S, R-2-S,R-2-I) 19 feet (R-1-S, R-2-S, R-2-I zones only)	21 feet or less, as indicated in figures 41-1A, 41 1B and 41 1C

Figure 41-1A
90° PARKING

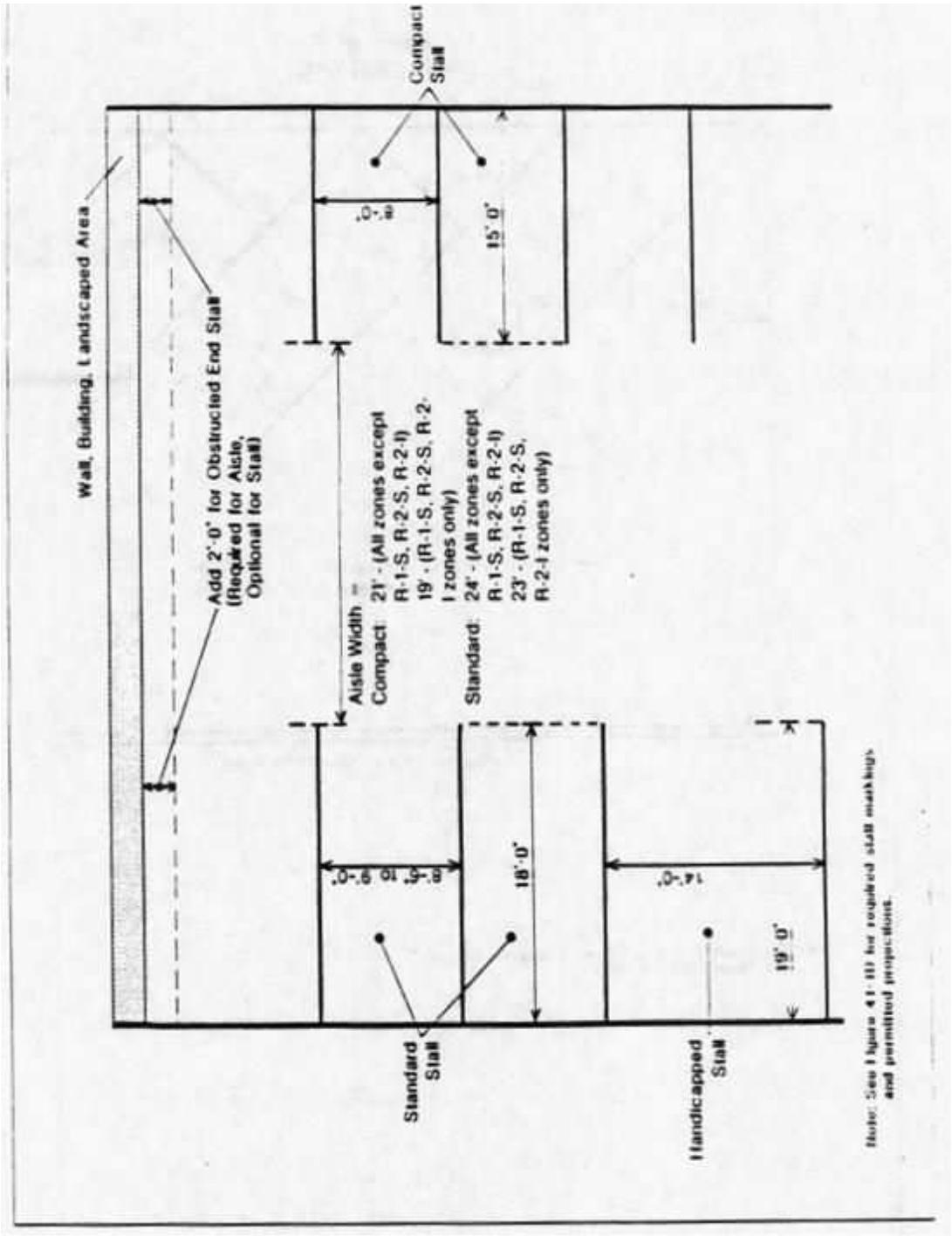
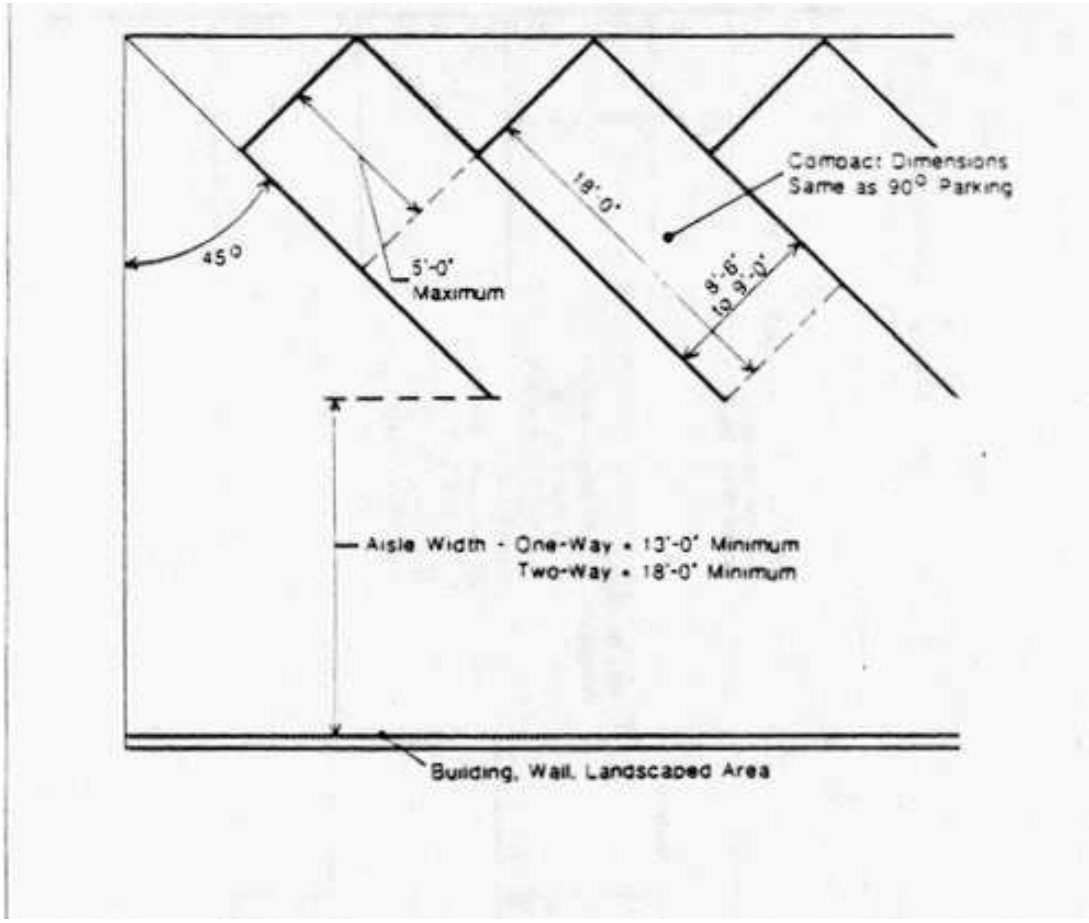
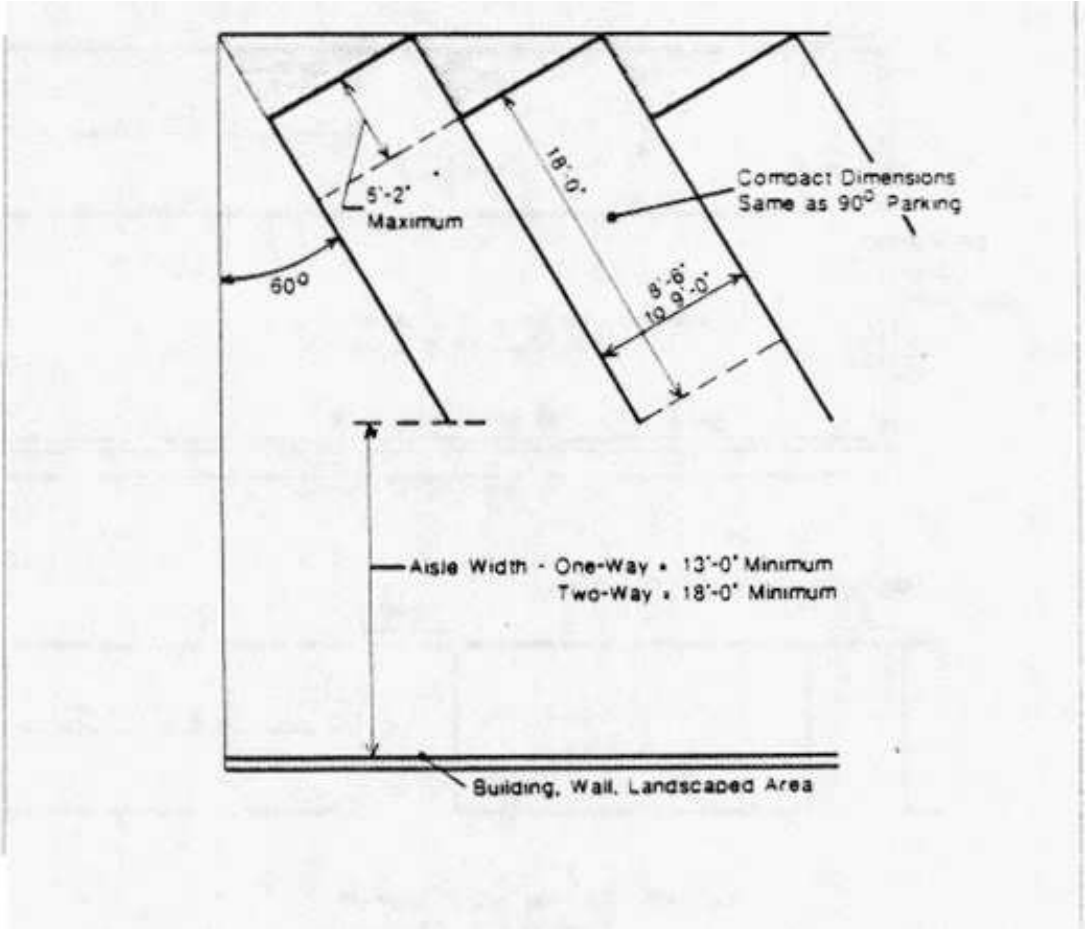


Figure 41-B
45° PARKING



Note: See Figure 41-1D for required stall markings and permitted projections.

Figure 41-1B
60° PARKING



Note: See Figure 41-1D for required stall markings and permitted projections.

Figure 41-1C
PARALLEL PARKING

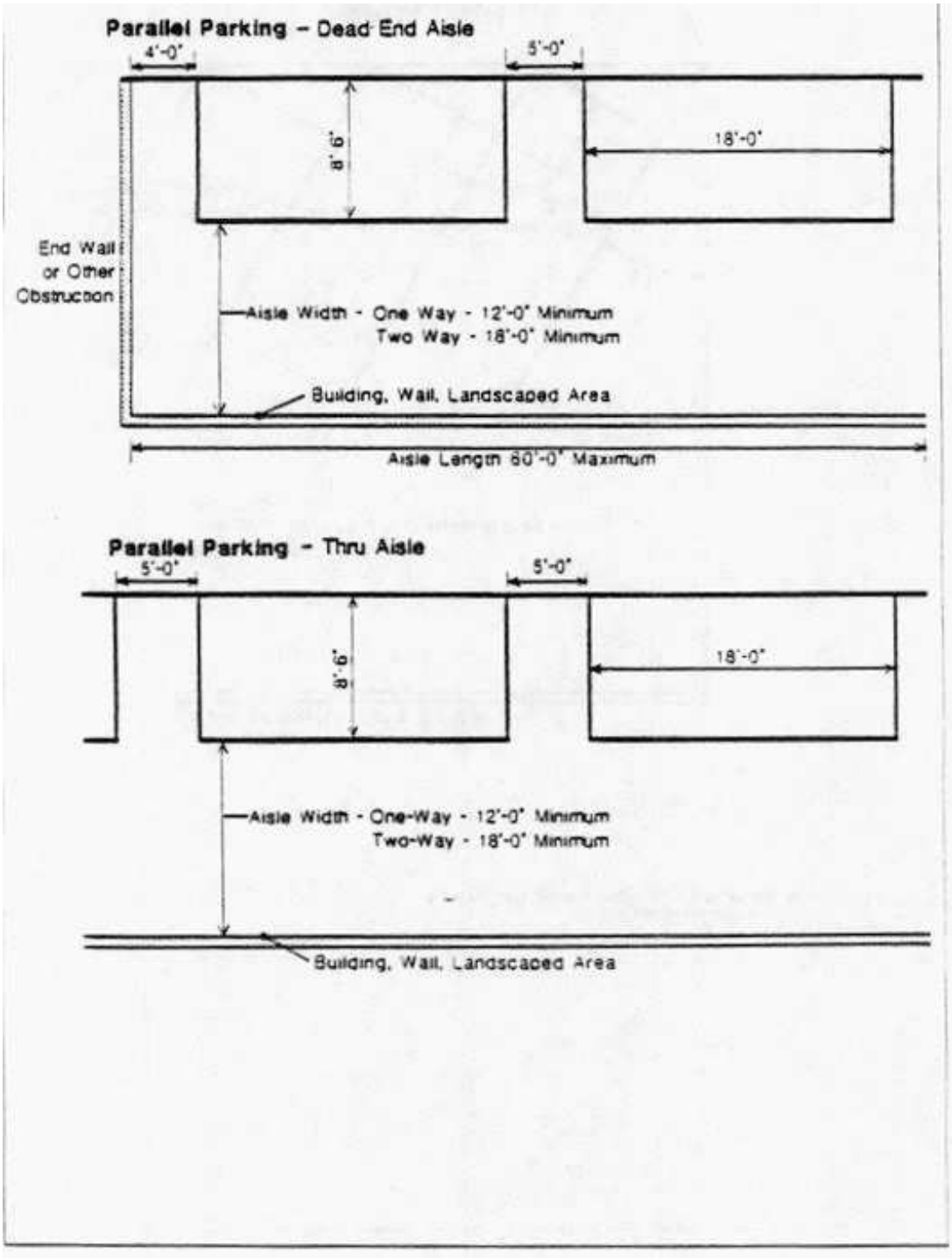
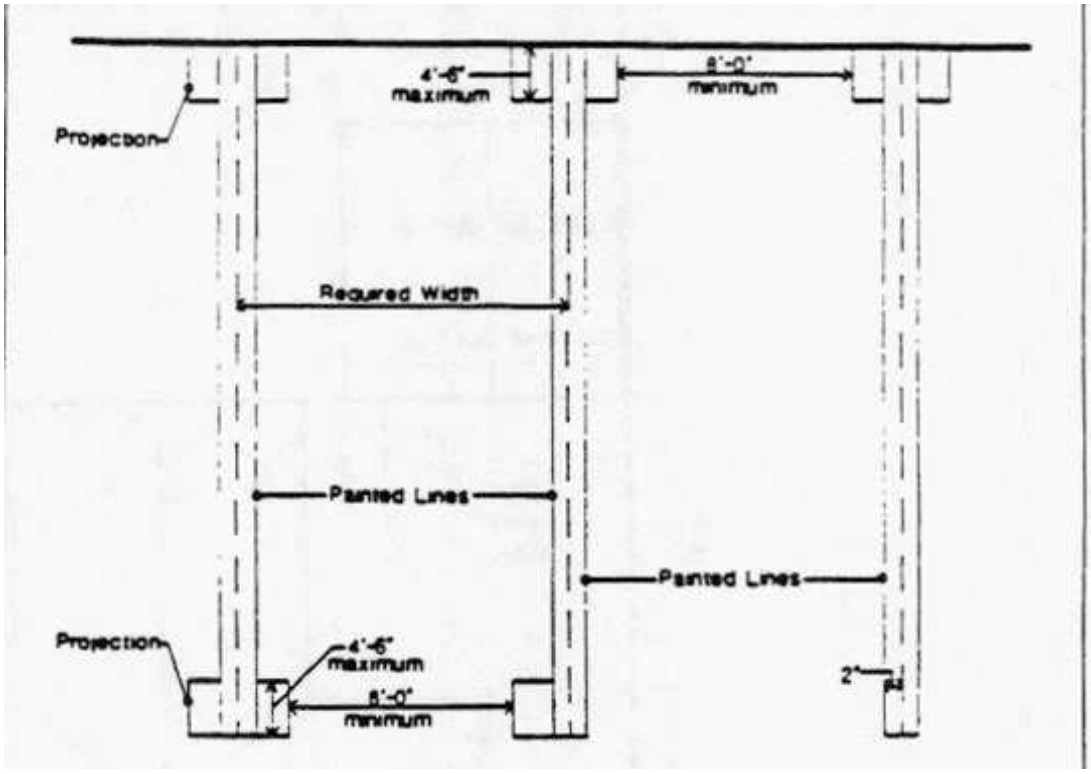


Figure 41-1D
REQUIRED STALL MARKINGS
AND PERMITTED PROJECTIONS



Each stall shall be defined by two painted lines extending two (2) inches beyond the required stall width.

Projections such as curbs or posts may be provided at each stall provided such projection does not extend more than 4'-6" into the space as shown. Such projections may be placed at either end of the stall.

Figure 41-1E
MINIMUM DRIVEWAY CLEARANCE

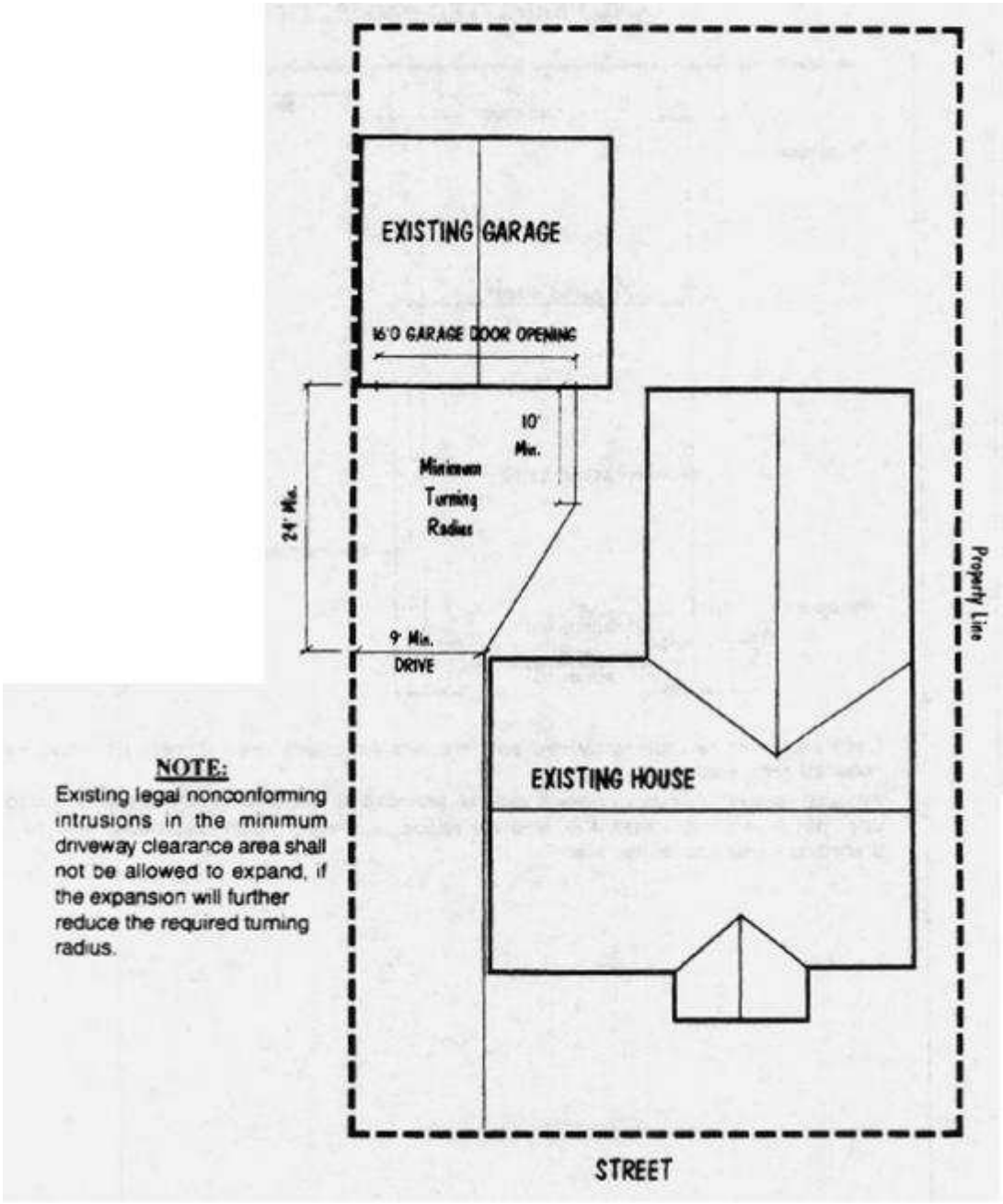


Table 41-4
Minimum Driveway Widths

Number of Spaces	Minimum Width
0—4	9 ft. 0 in.
5—14 (or one-way flow)	12 ft. 0 in. 18 ft. 0 in. inside a garage or parking lot
15 or more (or two-way flow)	20 ft. 0 in. residential and 24 ft. 0 in. nonresidential from curb to garage or parking lot

21.41.246 Parking—Access.

Each parking space, with the exception of tandem and valet spaces, shall be independently accessible.

(Ord. C-6533 § 1 (part), 1988)

21.41.249 Parking area improvements.

Sections 21.41.251 through 21.41.269 indicate the minimum improvements which shall be provided in all parking areas.

(Ord. C-6533 § 1 (part), 1988)

21.41.251 Driveways and curb cuts.

A. **Driveways—Minimum Widths.** All uses shall provide a paved driveway from the required parking space(s) to the public street or alley of at the least minimum width specified in Table 41-4. A greater width may be required where the Director of Public Works determines it is beneficial to the public safety or traffic circulation.

B. **Driveways and Curb Cuts—Maximum Number and Widths.** The maximum number and widths of driveways and curb cuts shall be as specified in Table 41-5. Wider driveways may be allowed on regional arterials, arterials, principal streets or collector highways where the Director of Public Works determines a greater width will be beneficial to public safety or traffic flow. The following special conditions shall also apply:

1. Separation between driveways on same site - twenty feet (20′) of full height curb;

2. Separation between driveways on adjoining sites - twenty feet (20′) of full height curb (unless width of site precludes compliance, then twenty feet (20′) shall be maintained on at least one (1) side);

3. Combined driveways - joint use driveways between sites shall be allowed for adjoining sites provided not less than eight feet (8′) of driveway is provided on each site.

C. **Driveway and Curb Cut Permit.** When issuing a driveway and/or curb cut permit, the City Engineer shall specify in the permit the location and dimensions of the driveway and the permittee shall comply with the provisions of the permit in the construction of the driveway.

D. **Driveway Locations in Nonresidential Zones.** The following requirements shall apply to all non-residential zones, and mixed-use zones that are primarily commercial in nature.

1. **Two-Way Driveways.** Such driveways shall be located not less than ninety feet (90′) from any intersection for all lots with one hundred twenty-five feet (125′) or more of street frontage. For lots with less than one hundred twenty-five feet (125′) of street frontage, the driveway shall be located not less than two-thirds (⅔) of the width of the lot from the intersection.

2. **One-Way Driveways.** Such driveways shall be located not less than thirty-five feet (35′) from any intersection. A one-way driveway is a driveway that allows only a right turn in, or a right turn out. Both in and out movements are not allowed in the same one-way driveway.

E. **Driveway Locations in Residential Zones.** All driveways shall be located not less than thirty feet (30′) from any intersection, except lots less than thirty feet (30′) in width without alleys, then no restriction shall apply other than those contained in Subsection B of this Section.

F. **Driveway Slopes—All Uses.** No driveway or parking ramp shall have a slope of more than one foot (1′) of vertical rise for each seven feet (7′) of horizontal length.

G. **Driveway Clearance.** All driveways shall have a minimum clearance of seven feet (7′) from the driving surface to any overhead obstruction. No projections in this area shall be allowed. This provision shall not apply to the driving area inside a parking structure where the requirements of the Uniform Building Code shall apply. Where higher clearance is required for handicapped access, the provisions for handicapped access shall apply.

H. **Driveway Locations in Industrial Zones.**

1. **Driveways Accessing a Local or Collector Street.** Driveways which access a Local or Collector street, as designated in the Transportation Element of the General Plan, shall be located such that the edge of the access driveway shall be either at least five feet (5′) from the end of the curb return or at least twenty-five feet (25′) from the intersection of two (2) non-arterial streets, whichever is greater. If the nearest intersection includes an Arterial or greater street, then the regulations of Subsection H.2 below shall apply.

2. **Driveways Accessing Arterial and Regional Corridor Streets.**

   a. **Two-Way Driveways.** For lots with one hundred twenty-five (125) or more feet of street frontage, two-way driveways shall be located not less than ninety feet (90′) from any intersection. For lots with less than one hundred twenty-five feet (125′) of street frontage, the driveway shall be located not less than two-thirds (⅔) of the width of the lot from the intersection.

   b. **One-Way Driveways.** One-way driveways shall be located not less than thirty-five feet (35′) from any intersection. Movements shall be restricted to either right turns in or right turns out.

I. **Residential Curb Cuts and Driveways - Legal Parking Space and Garage Requirement.**

1. **Legal parking space required.** A curb cut and driveway shall lead to a legal parking space on a lot or parcel, either in a garage or as open parking permitted by Section 21.41.281 and Figure 41-3.

2. **Garage required.** If a garage is required by Section 21.41.213 or another applicable regulation, no new curb cut or driveway shall be permitted that does not lead to a garage.

   a. **Exception if no garage is feasible.** On a residential lot with four or fewer existing principal dwellings and no existing garage, if construction of a garage is not feasible, but a conforming curb cut, driveway, and legal parking space(s) could be constructed according to this Section and Table 41-5, no garage shall be required, and the legal parking space(s) shall be counted toward the parking requirement.

   b. Subsection 21.41.251.I.2.a shall not apply if any principal dwelling on the lot is proposed to be or has been demolished either in conjunction with the proposed curb cut/driveway, or as a causative reason for the proposed curb cut/driveway, in which case it shall be presumed that a garage is feasible.

J. **Curb cut measurement.** Measurement of the width and other relevant dimensions of a curb cut and driveway apron(s) shall be taken in accordance with the procedures established by the Director of Public Works or City Traffic Engineer.

(ORD-24-0033 § 22, 2024; Ord. C-7360 § 14, 1995; Ord. C-7032 § 29, 1992; Ord. C-6895 §§ 21, 22, 1991; Ord. C-6822 § 17, 1990: Ord. C-6684 §§ 33, 34, 1990: Ord. C-6533 § 1 (part), 1988)

21.41.253 Parking areas—Curb cuts.

A curb cut clearance shall be obtained from the Public Works Department and shall be submitted with an application for a building permit. For any nonresidential use with more than a fifty foot (50′) frontage on a street, no curb cut shall be permitted within thirty-five feet (35′) of an intersection. All unused curb cuts shall be replaced with a full height curb and gutter. For purposes of this Section, "unused curb cut" shall mean any curb cut not used to access required parking that has been approved by the City. The Zoning Administrator may determine when an unused curb cut may remain when justified by existing conditions on the site, including but not limited to:

A. Properties in Historic Districts;

B. Properties in Parking-Impacted Areas;

C. Properties with permitted Accessory Dwelling Units;

D. Properties with non-conforming uses.

Table 41-5
MAXIMUM NUMBER AND WIDTH OF DRIVEWAYS AND CURB CUTS

Site Width	No Paved Alley a, d Or Paved Alleys Less Than 10 Feet In Width	Paved Alley a, c 10 Feet 15 Feet	Paved Alley a, c 16 Feet 20 Feet
0 feet—120 feet	1 curb cut, 20 feet maximum width[e]	No curb cuts—residential[b]; 1 curb cut 24 feet maximum width—nonresidential	No curb cut—residential[b]; 24 feet maximum width—nonresidential
121 feet—200 feet	2 curb cuts, 24 feet maximum width each	1 curb cut, 24 feet maximum width	No curb cut—residential[b]; 1 curb cut 24 feet maximum width—nonresidential

Table 41-5 MAXIMUM NUMBER AND WIDTH OF DRIVEWAYS AND CURB CUTS			
Site Width	**No Paved Alley a, d Or Paved Alleys Less Than 10 Feet In Width**	**Paved Alley a, c 10 Feet 15 Feet**	**Paved Alley a, c 16 Feet 20 Feet**
201 feet—400 feet	2 curb cuts, 24 feet maximum width each	2 curb cuts, 24 feet maximum width each	No curb cut—residential[b]; 2 curb cuts 24 feet maximum width—nonresidential
401 feet plus	3 curb cuts, 24 feet maximum width each	3 curb cuts, 24 feet maximum width each	No curb cut—residential[b]; 3 curb cuts, 24 feet maximum width—nonresidential

Notes:

a. Minimum width of the alley from site to public street.

b. This shall only apply in parking impacted areas. In R-1 and R-2 zones, outside of parking impacted areas, one driveway, 20 feet wide is allowed. In all residential zones within parking impacted areas, nonconforming driveways may be maintained provided that the driveway leads to a legal parking space.

c. No access shall be allowed to an arterial highway from a lot in a residential zone.

d. On corner lots, in residential zones, where both streets are classified as regional arterials, arterials, principal streets or collector streets, driveway(s) shall be limited to the lower classified street.

e. The City Engineer may adjust the width of the permitted curb cuts by up to 4 feet, if such an increase would be beneficial to the public safety.

(ORD-19-0011 § 9, 2019; ORD-05-0038 § 1, 2005: Ord. C-6684 § 35, 1990: Ord. C-6533 § 1 (part), 1988)

21.41.256 Reserved.

Editor's note—ORD-10-0031 § 7, adopted Oct. 12, 2010, repealed § 21.41.256, entitled "Parking areas-Landscaping," and derived from: Ord. C-6533 § 1 (part), 1988.

21.41.257 Reserved.

Editor's note—ORD-10-0031 § 7, adopted Oct. 12, 2010, repealed § 21.41.257, entitled "Parking areas-Landscaping in IG and IP zones," and derived from: Ord. C-7360 § 15, 1995.

21.41.259 Parking areas—Lighting.

All parking lots and garages shall be illuminated with lights directed and shielded to prevent light and glare from intruding onto adjacent sites. The light standards shall not exceed the height of the principal use structure or one foot (1′) for each two feet (2′) of the distance between the light standard and the nearest property line, whichever is greater. All lights shall be illuminated to the applicable standards of the Illuminating Engineers Society.

(Ord. C-6533 § 1 (part), 1988)

21.41.261 Parking areas—Markings.

All parking spaces shall be clearly marked by pavement painting. Compact and handicapped parking spaces shall be marked additionally by pavement painting and signage indicating the type of space as required by Chapter 10.34 (Parking for Handicapped Persons in Public Places) of the Long Beach Municipal Code. All aisles with only compact spaces shall provide a sign at the aisle entrance stating that only small cars are permitted.

(Ord. C-6533 § 1 (part), 1988)

21.41.263 Parking areas—Paving.

The entire driveway and vehicle parking, storage and loading areas for all uses shall be improved and surfaced with a paving material not less than three and one-half inches (3½") thick of solid asphaltic or concrete paving or equivalent hard surface to the satisfaction of the Superintendent of Building and Safety.

(Ord. C-6533 § 1 (part), 1988)

21.41.266 Parking areas—Screening.

A. **Adjacent to Residential Zones.** Whenever a parking lot abuts or is adjacent to a residentially zoned property, a solid masonry wall not less than six feet, six inches (6′6″) in height shall be provided. The wall shall be constructed along the entire parking lot property line. However, any such wall adjoining the front yard setback of the residential property shall not exceed three feet (3′) in height.

B. **Adjacent to Residential Zone Across an Alley.** Where a parking lot abuts or is adjacent to a residential district across an alley, broad leaf evergreen trees, at least fifteen (15) gallon in size, shall be planted fifteen feet (15′) on center.

C. **Adjoining Public Street.** Wherever a parking lot adjoins a public street, a solid masonry wall three feet (3′) in height shall be provided. A solid, compact evergreen hedge may be used instead, provided:

1. The hedge shrubs are not less than two feet (2′) tall when planted; and

2. The hedge shrubs are planted not more than two feet (2′) on center.

Alternatively, a combination planter/hedge or berm/hedge may be used, provided:

3. The planter or berm is at least eighteen inches (18″) high; and

4. The shrubs, when planted, are at least one foot (1′) high.

D. **Wall Composition.** All screen walls shall be attractively designed with pilasters, caps and a painted or plastered finish as required by the Director of Planning and Building.

E. **Screening Not Required.** No screening shall be required when a parking lot adjoins an alley and the alley is used to provide direct access to head-in parking.

F. **Screening—R-3 and R-4 Zones.** In R-3 and R-4 zoning districts, parking lots and parking structures facing a public street shall be screened by a solid wall five feet (5′) in height and a solid garage door.

(Ord. C-6533 § 1 (part), 1988)

21.41.269 Parking areas—Wheel stops.

Each parking stall located adjacent to a building, fence, wall or landscaping shall provide a wheel stop as shown on Figure 41-2. Wheel stops shall be constructed of concrete or other materials, as approved by the Superintendent of Building and Safety. No vehicle shall be permitted to overhang required landscaped areas behind wheel stops.

(Ord. C-7247 § 23, 1994: Ord. C-6533 § 1 (part), 1988)

21.41.273 Parking structures.

A. **Secured.** All parking structures shall be designed and improved to allow them to be completely secured.

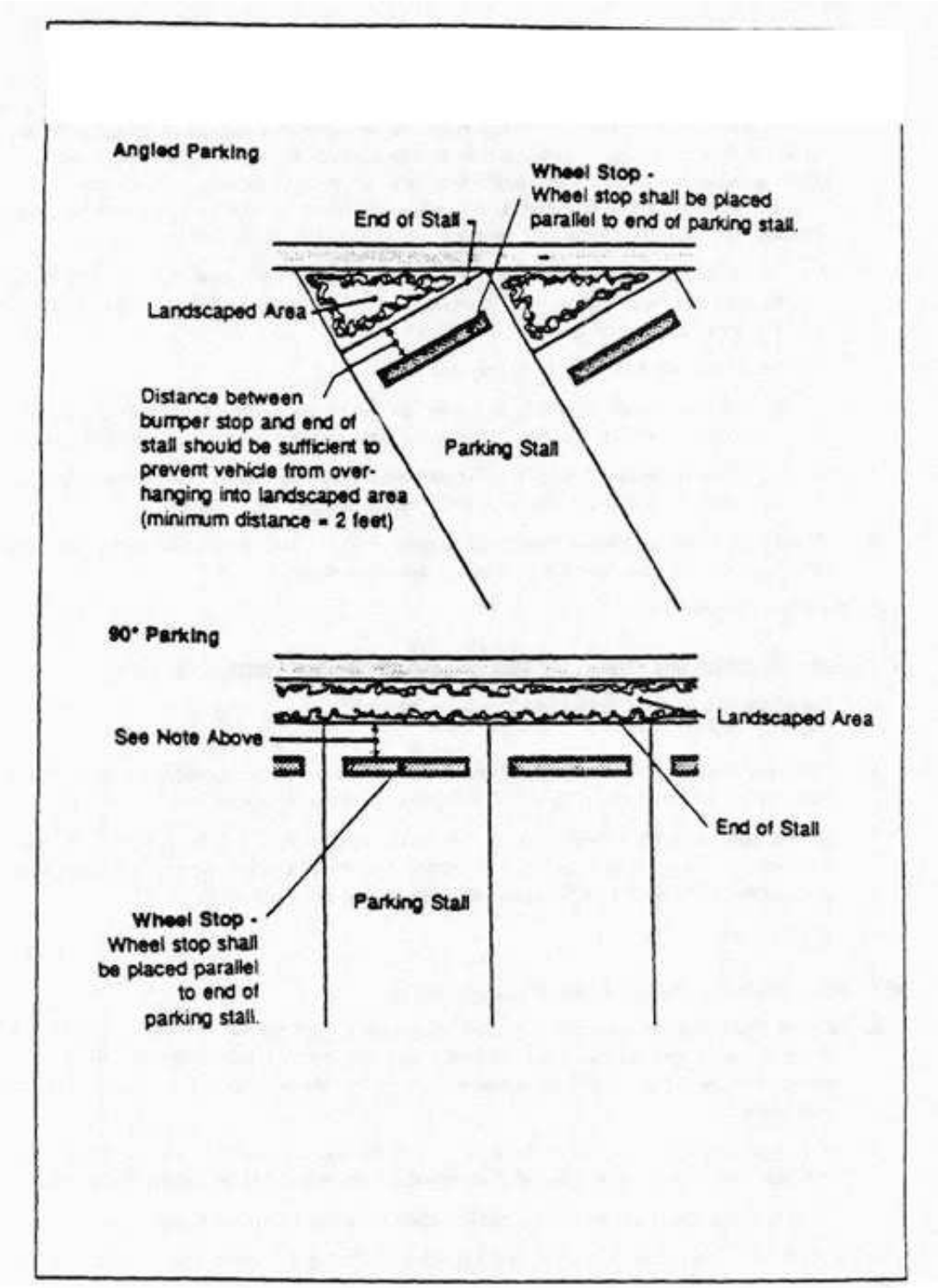
B. **Landscaping.** An attractive landscaping strip shall be provided along any public street in accordance with the landscaping requirements of this Chapter.

(Ord. C-6533 § 1 (part), 1988)

21.41.276 Recreational vehicle parking—Residential districts.

A. **Size Limitation.** No recreational vehicle which exceeds seven (7) tons in dry weight, thirty-six feet (36′) in length or eleven feet, six inches (11′6″) in height, not including rooftop equipment, shall be parked, stored or loaded on a residentially zoned lot.

Figure 41.2
WHEEL STOPS



B. **Storage and Loading—Location.** Permitted recreational vehicles may be parked, stored or loaded in any location in which passenger vehicles may be parked, stored or loaded, unless otherwise restricted. Further, recreational vehicles may be parked, stored or loaded in locations where passenger vehicles may not be parked, stored or loaded, provided that no other location on the site ordinarily available for vehicle parking can accommodate the recreational vehicle because access to those locations is blocked by a permanent building element such as a structural wall, an eave or a roof. These locations are:

1. In areas blocking access to required parking spaces, provided that the spaces being blocked are for a single-family dwelling only and the owner of the recreational vehicle resides in that dwelling; and

2. In the side yard setback area, provided that:

   a. The recreational vehicle is located as far as physically feasible from the side lot line, consistent with requirements for light and ventilation into adjoining rooms.

   b. The recreational vehicle is located as far to the rear of the lot as is physically consistent with maintaining access to the garage.

C. **Boats and Camper Shells.** Boats and camper shells, if parked in areas visible from public rights-of-way, shall be mounted on licensed, operative vehicles.

(Ord. C-6533 § 1 (part), 1988)

21.41.279 Recreational vehicle parking and storage—Nonresidential districts.

A. **Parking.** Recreational vehicle parking shall be permitted in the same manner as passenger vehicle parking.

B. **Storage.** Outdoor storage shall be permitted consistent with the outdoor storage provisions contained in Chapter 21.45 (Special Development Standards) of this Title.

C. **Overnight Parking Prohibited.** Recreational vehicles shall not be occupied and parked overnight in any parking lot in a commercial district. Under no circumstances shall a recreational vehicle be used for living, sleeping, eating or entertaining.

(Ord. C-6533 § 1 (part), 1988)

21.41.281 Vehicle parking in residential setbacks.

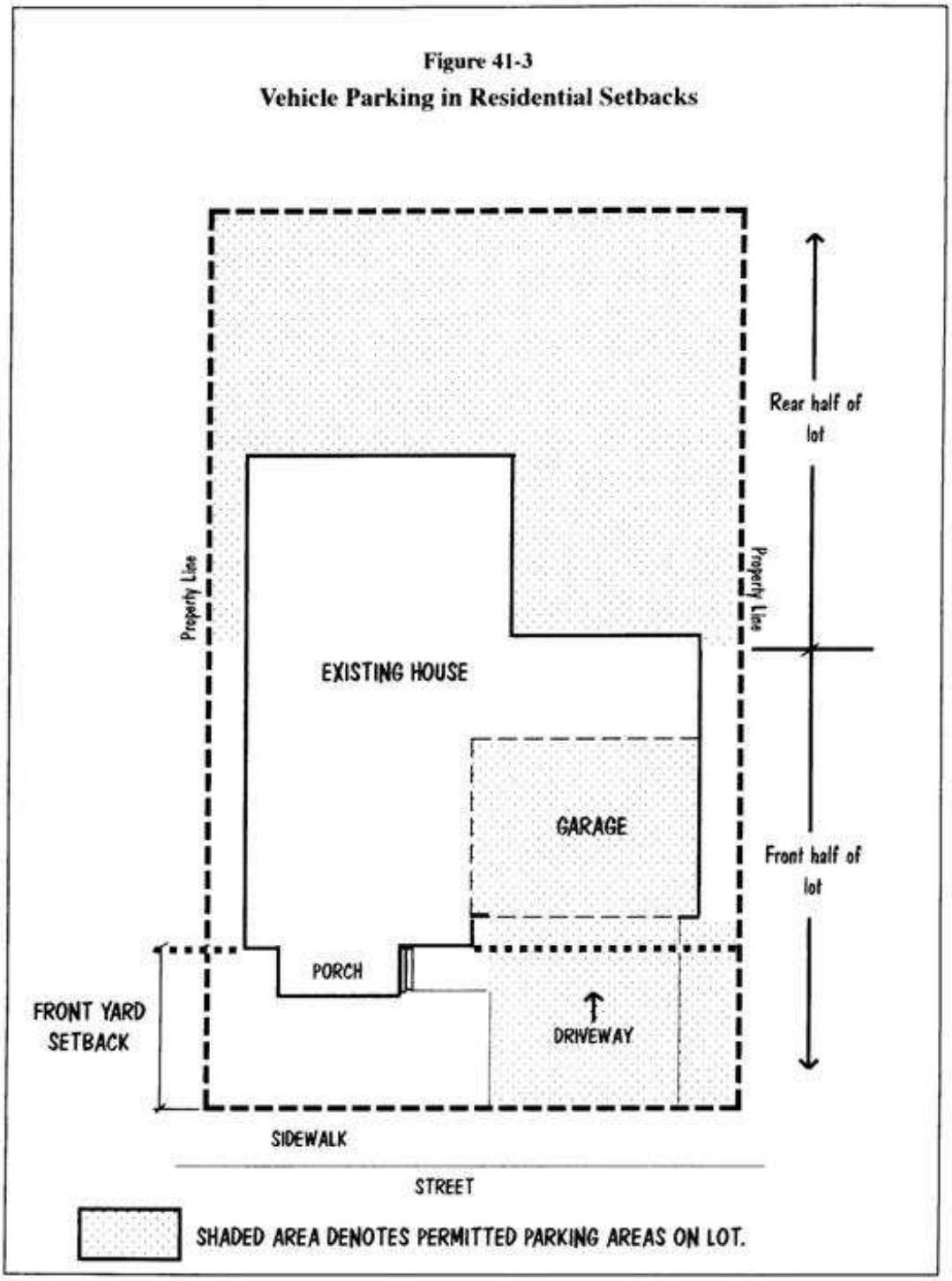
A. **Front Yard.** No vehicle shall be parked in the front yard setback, except on the driveway, or on a paved area between the driveway and the nearest side property line, and/or as provided in Section 21.41.276 for recreational vehicles. No vehicle shall be stored in the front yard setback.

B. **Side and Rear Yard.** Open parking in the side or rear yard setback shall comply with the provisions for garages in R-1 and R-2 zones, which are stipulated in Section 21.31.245.

C. Permitted parking areas on residential lots shall be as illustrated in Figure 41-3.

(Ord. C-7326 § 21, 1995; Ord. C-7127 § 5, 1993: Ord. C-7032 § 30, 1992: Ord. C-6533 § 1 (part), 1988)

Figure 41-3
Vehicle Parking in Residential Setbacks



(Ord. C-7326 § 21, 1995)

21.41.283 Parking and storage of inoperative, dismantled or wrecked vehicles—Residential districts.

Inoperative, dismantled or wrecked vehicles may be stored as an accessory use in residential districts subject to the following:

A. The storage is limited to a maximum of two (2) such inoperative, dismantled or wrecked vehicles.

B. The storage shall be fully screened from public view.

C. The storage shall occur in the rear fifty percent (50%) of the lot and shall not block the required vehicular access to the garage.

D. The storage shall occur on a fully paved surface (Section 21.41.263).

E. Inoperative, dismantled or wrecked vehicles stored in violation of these regulations shall be removed or stored in compliance with these regulations within sixty (60) days of the effective date hereof.

(Ord. C-7776 § 4, 2001: Ord. C-6533 § 1 (part), 1988)

21.41.286 Drive-up and drive-thru facilities.

Drive-up and drive-thru facilities shall be developed in accordance with Chapter 21.45 (Special Development Standards) of this Title.

(Ord. C-6533 § 1 (part), 1988)

DIVISION III.

LOADING REGULATIONS

21.41.310 Loading—Required.

In addition to off-street parking spaces, off-street loading spaces shall be provided for uses in all zoning districts as set forth in Sections 21.41.320 through 21.41.370, except as otherwise provided by the Zoning Regulations.

(ORD-24-0033 § 23, 2024; Ord. C-6533 § 1 (part), 1988)

Table 41-6
Loading Space Standards

Type of Loading Space	Width	Length	Clearance
1. Passenger	9 feet	19 feet	10 feet
2. Large truck	14 feet	60 feet	15 feet
3. Reduced truck	12 feet	25 feet	12 feet

(Ord. C-7360 § 6, 1995)

21.41.315 Loading—Change of Use.

No new loading spaces shall be required for changes of use of any existing square footage within a building more than ten (10) years old, subject to the following:

A. **Conversion of parking to loading.** If the lot or parcel is exempt from parking minimums per Section 21.41.175, or the change of use is exempt from parking requirements per Section 21.41.165, existing off-street parking spaces may be converted into loading spaces in accordance with the development standards for loading spaces in Sections 21.41.320 through 21.41.370, if necessary to meet the loading requirements of this Chapter. No more than the code-required number of loading spaces shall be provided through conversion of off-street parking spaces if the number of existing parking spaces is nonconforming. Conversion of parking spaces to loading spaces for purposes of this Section shall require the applicant to obtain the approval of the Director of Community Development, by submitting a site plan depicting the proposed arrangement of parking and loading spaces.

B. **On-street loading spaces.** If no off-street parking spaces may be converted to loading spaces, the applicant shall request the Director of Public Works to designate the appropriate type and number or length of curb loading space(s) in the public right-of-way adjacent to the lot or parcel, if feasible.

C. **Inapplicability to specific uses.** This Section shall not apply to the following uses: hotel, motel, inn, bed and breakfast inn, other transient lodging, and event center.

(ORD-24-0033 § 11, 2024)

21.41.320 Loading—Size of spaces.

There shall be two (2) sizes of loading spaces as specified in Table 41-6.

(Ord. C-6533 § 1 (part), 1988)

21.41.330 Loading—Number of spaces.

The minimum number of loading spaces provided shall be as set forth in Table 41-7.

(Ord. C-6533 § 1 (part), 1988)

21.41.340 Loading—Location.

All loading areas shall be located outside of required aisles or other circulation areas. Loading areas shall not be located in any required yard area which is adjacent to a residential district.

(Ord. C-6533 § 1 (part), 1988)

21.41.345 Loading—Backing into street.

On lots which are located ninety (90) or more feet from the intersection of two (2) non-arterial streets, and which provide access to loading areas from a local or collector street, as defined in the Transportation Element of the General Plan, the loading areas may be designed to allow trucks to back into the local or collector street subject to the approval of the Director of Public Works.

(Ord. C-7360 § 16, 1995)

Table 41-7
Required Number of Loading Spaces

Use	Number of Spaces	Type of Spaces
1. Daycare, elementary school	2 loading and unloading spaces	Required off-street parking space posted for passenger loading
2. Hotel	2 loading and unloading spaces	Required off-street parking space posted for passenger loading
3. Manufacturing, packing, assembly, warehousing	a) 0—3,000 SF, 0 spaces	n/a
	b) 3,001—10,000 SF, 1 space	Reduced truck
	c) 10,001—40,000 SF, 1 space plus 1 space for each additional 40,000 SF, for each individual user	Truck
4. Medical or dental office, hospital	5 per 100 off-street parking spaces, if more than 50 off-street spaces required	Required off-street parking space posted for passenger loading
5. Public assembly	1 per 100 off-street parking spaces, if more than 50 off-street spaces required	Required off-street parking space posted for passenger loading
6. Retail, service or office commercial	1 per 100 off-street parking spaces, if more than 50 off-street spaces required	Required off-street parking space posted for passenger loading
7. Supermarket, grocery, drug, variety, department, furniture, hardware or appliance store, or shopping center	a) from 0 to 10,000 SF-GFA, 0 spaces	Truck
	b) from 10,001 to 40,000 SF-GFA, 1 space	Truck
	c) from 40,001 to 160,000 SF-GFA, 2 spaces	Truck
	d) over 160,000 SF-GFA, 3 spaces	Truck

Abbreviations: SF= square feet
GFA = gross floor area

(Ord. C-7399 § 11, 1996; Ord. C-7360 § 7, 1995; Ord. C-6533 § 1 (part), 1988)

21.41.350 Loading—Turning radius.

All loading areas shall be located to provide an adequate turning radius. Adequate turning radius means one which allows a vehicle to maneuver without backing into a street or without backing into the loading space from a street.

(Ord. C-6533 § 1 (part), 1988)

21.41.360 Loading—Screening.

All truck loading spaces shall be separated from adjoining, abutting or adjacent residential districts by a building or masonry wall not less than six feet (6′) in height.

(Ord. C-6533 § 1 (part), 1988)

21.41.370 Loading docks.

Loading docks shall be provided for all uses that require truck loading spaces and that contain more than forty thousand (40,000) square feet of gross floor area in a single lease over ownership area. All loading docks shall be designed and improved in such a way as to allow them to be completely secured.

(Ord. C-6533 § 1 (part), 1988)

CHAPTER 21.42 LANDSCAPING STANDARDS*

21.42.010 Purpose.

Landscapes are intended to improve the physical appearance of the City by providing visual, ecological, and psychological relief in the urban environment. Successfully designed and maintained landscape areas provide an attractive living, working, and recreating environment in addition to their role in reducing water and energy consumption.

(ORD-10-0031 § 6, 2010)

21.42.020 Landscaping required.

The provisions of this Chapter shall be the minimum requirements for the provision and maintenance of landscaped areas.

(ORD-10-0031 § 6, 2010)

***Editor's note**—ORD-10-0031, § 6, adopted Oct. 12, 2010, amended Ch. 21.42 to read as herein set out. Former Ch. 21.42, §§ 21.42.010—21.42.060, pertained to similar subject matter and derived from: Ord. C-6533 § 1 (part), 1988; Ord. C-6895 § 23, 1991; Ord. C-6933 § 34, 1991; Ord. C-7032 §§ 31, 48, 1992; Ord. C-7065 §§ 1, 2, 1992; Ord. C-7326 §§ 22, 23, 31, 1995; Ord. C-7360 §§ 12, 17, 1995; Ord. C-7399 §§ 12, 13, 1996; and ORD-09-0034 § 1, 2009.

21.42.030 General requirements.

The following requirements shall apply to all zoning districts:

A. **Landscaped Area.** All required yards and setback areas shall be attractively landscaped primarily with drought tolerant and native plant materials. Decorative non-living materials such as brick, stone, art, fountains and ponds may be used within the landscaped area provided such materials present an attractive setting consistent with the intent of these landscaping requirements. All landscape areas shall be completely planted or covered. "Landscape area" means all the planting areas, turf areas, and water features in a landscape design plan subject to the Maximum Applied Water Allowance calculation. The landscape area does not include footprints of buildings or structures, sidewalks, walkways, driveways, parking lots, decks, patios, and other non-irrigated areas designated for non-development (e.g., open spaces and existing native vegetation).

1. A complete Landscape Document Package showing the Estimated Total Water Usage (ETWU) of all proposed plantings falling below the property's specific Maximum Applied Water Allowance (MAWA), as specified in the Landscape Document Package application, shall be required. Selected plants shall not cause the estimated water use to exceed the landscape project's water budget.

2. Non-permeable paving and non-permeable artificial turf shall not cover more than thirty percent (30%) of on-site area that is not covered by structures, driveways, and approved parking pads. To help with on-site stormwater retention and filtration along with reducing the urban heat island effect, the use of permeable and high reflectance paving materials is encouraged.

3. Live plant material shall cover a minimum of fifty percent (50%) of any front setback area.

4. Mulch shall be applied on all exposed soil surfaces of planting areas except in turf areas and areas of creeping or rooting groundcovers to retain soil moisture, regulate soil temperature, suppress weed growth, and improve landscape aesthetics.

5. Compacted soils shall be transformed to a friable condition prior to any planting to aide proper on-site drainage and soil moisture retention.

6. Water-efficient landscape irrigation systems on automated timers and sensors shall be used and abide by all applicable Long Beach Water Department water use prohibitions.

7. Large canopy trees shall be used to help minimize urban heat island effect.

8. Projects shall be designed to minimize or eliminate use of turf.

9. Recirculating water systems shall be used with decorative water features. Where available, recycled water shall be used as a water source.

10. Plants with similar water needs shall be planted together in distinct hydrozones based on their water, soil, sun and shade requirements. Where irrigation is required, plants with different water needs shall be irrigated with separate values. Plant groupings that mix high and low water use plants shall not be permitted.

11. The use of infiltration beds, swales, and basins that allow water to collect and soak into the ground; and retention ponds that retain water, handle excess flow and filter pollutants are highly encouraged in the landscape design.

12. The use of invasive plant species, such as those listed by the California Invasive Plant Council, shall be prohibited in the Coastal Zone.

B. **Maintenance.** All landscaped and paved areas shall be maintained in a neat, attractive, orderly and water efficient condition. All paved areas, walls and fences shall be in good repair without broken parts, holes or litter. Dead or diseased plants shall be removed and replaced with plant materials that comply with the provisions of this Chapter.

C. **Plans Required.** When applicable, a Landscape Document Package shall be approved prior to the issuance of any planning or building permit. For projects proposing landscape area coverage with a minimum of ninety percent (90%) very low to low water use plantings, ETWU and MAWA calculations are not required in the Landscape Document Package submittal. Applicable landscaping, irrigation, planter drainage, water reuse, retention and filtration improvements shall be implemented before any final building and planning inspection is approved.

D. An applicant proposing any new or rehabilitated landscape for a project subject to the requirements of Section 21.42.035 shall prepare and submit a Landscape Document Package at the time of project plan check filing. The Landscape Document Package shall contain the following components:

1. MWELO Project Checklist;

2. Water Efficient Landscape Worksheet;

3. Landscape Design Plan;

4. Irrigation Design Plan;

5. Grading Plan;

6. Soil Management Report.

Approval of the Landscape Document Package shall be required prior to the issuance of building permits and before landscaping is installed. Residential and non-residential projects with an aggregate landscape area of two thousand five hundred (2,500) square feet or less may comply with prescriptive compliance measures identified in the MWELO Project Checklist of the Landscape Document Package. Following landscape installation, a Certificate of Completion signed by the professional of record for the landscape and irrigation design certifying that the project was installed per the City-approved Landscape Document Package shall be filed with Development Services. The Certificate of Completion must be deemed approved before a Certificate of Occupancy is issued.

(ORD-19-0007 § 8, 2019; ORD-16-0028 § 11, 2016; ORD-10-0031 § 6, 2010)

21.42.035 Special requirements for Water Efficient Landscaping.

The following water efficient landscaping standards are in place to promote the conservation and efficient use of water in response to ongoing drought conditions:

A. **Applicability.**

1. Pursuant to the State Water Conservation in Landscaping Act (AB1881), the following projects shall comply with the water efficient landscaping standards set forth by the State Model Water Efficient Landscape Ordinance (MWELO):

   a. All projects which require the issuance of a Site Plan Review. All projects requiring Site Plan Review shall file a conceptual MWELO Project Checklist, Water Efficient Landscape Worksheet, and Landscape Design Plan at the time of application submittal. Approval of a conceptual landscape proposal demonstrating compliance with all applicable MWELO provisions shall be required prior to the issuance of a Notice of Final Action. Approved conceptual landscape proposals must be developed into final landscape plans subject to the requirements of Section 21.42.030 after Notice of Final Action issuance but prior to building permit application filing;

   b. New residential, commercial, industrial, institutional and public agency landscape projects with an aggregate landscape area equal to or greater than five hundred (500) square feet requiring a landscape plumbing permit;

   c. Rehabilitated residential, commercial, industrial, institutional and public agency projects with an aggregate landscape area equal to or greater than two thousand five hundred (2,500) square feet requiring a landscape plumbing permit;

   d. Cemeteries. Recognizing the special landscape management needs of cemeteries, new and rehabilitated cemeteries are limited to Sections 492.4, 492.11 and 492.12; and existing cemeteries are limited to Sections 493, 493.1 and 493.2 of the California Code of Regulations Title 23, Chapter 2.7, Model Water Efficient Landscape Ordinance;

   e. Existing landscapes are limited to Sections 493, 493.1 and 493.2 of the California Code of Regulations Title 23, Chapter 2.7, Model Water Efficient Landscape Ordinance; and

   f. Public facilities and public right-of-way.

2. The requirements of this Chapter shall not apply to the following projects:

   a. Registered local, State or federal historical sites;

   b. Landscape projects not connected to the public water system;

   c. Ecological restoration projects that do not require a permanent irrigation system; or

   d. Plant collections, as part of botanical gardens and arboretums open to the public.

3. Special landscaped areas including sports fields, golf courses, and playgrounds where turf is the surface utilized for recreational use may require water exceeding the Maximum Applied Water Allowance (MAWA). As such, justification must be provided in the submittal documentation outlining specific hydrozones needed for additional water exceeding the MAWA. Turf shall be limited to areas utilized for high recreation areas while the perimeter areas shall utilize drought-tolerant and native plants in hydrozones (very low water and low water use).

4. Orchards, community gardens and nurseries may require water exceeding the MAWA. As such, justification must be provided in the submittal documentation outlining specific hydrozones needed for additional water exceeding the MAWA.

5. Edible plant gardens may comprise up to ten percent (10%) of total landscaped area. Edible plant gardens in excess of ten percent (10%) but not exceeding twenty percent (20%) of total landscaped area shall use an adequately sized rain barrel or other water retention system for garden irrigation.

(ORD-16-0028 § 11, 2016; ORD-10-0031 § 6, 2010)

21.42.040 Landscaping standards for R-3, R-4 and Nonresidential Districts.

A. **Applicability.** All portions of a lot not paved or occupied by a structure shall be attractively landscaped. All required set back areas shall be landscaped unless used for a permitted use.

B. **Landscape Area Requirements.** A minimum number of plants shall be provided as follows:

1. **On-Site Street Frontage.**

   a. Within the required setback area along all street frontages, except at driveways, a minimum five-foot (5') wide landscaping strip (inside dimension to planter) shall be provided. This area shall be landscaped with one (1) tree for each fifteen (15) linear feet of street frontage and three (3) shrubs for each tree.

   b. Sites with more than one hundred feet (100') of street frontage shall also provide one (1) tree of not less than thirty-six inch (36") box size for each one hundred feet (100') of street frontage.

   c. Planters. All on-site landscaped areas adjoining the public right-of-way shall be located in planters not less than three inches (3") high. The planters shall be designed to drain back onto the private property and not directly onto the public right-of-way. When required, tree-wells shall be sized to allow full growth of proposed trees within the public right-of-way.

2. **Parking Lots.**

   a. One (1) canopy tree shall be provided for each four (4) open parking spaces. Trees may be clustered provided the fifty percent (50%) tree canopy shade coverage of all parking stall and related drive aisle areas, after ten (10) years of growth, is achieved. A minimum of one (1) cluster for each one hundred feet (100') of a row or double row of parking spaces shall be provided.

b. A minimum four foot (4') by four foot (4') planter size shall be provided to allow full growth of proposed trees.

c. Screening Required. A three-foot (3') tall masonry wall, landscaped berm, or hedge shall be provided in the event parking areas abut a street frontage. See Subsection 21.41.266.C for requirements.

d. Wheel Stops. No vehicles shall be permitted to overhang required landscaped areas behind wheel stops. See Section 21.41.269 for requirements.

3. **Parking Structures.**

a. An attractive six-foot (6') wide landscaping strip shall be provided on all sides of the structure except at driveways and walkways. One (1) tree shall be provided for each twenty feet (20') of perimeter of the structure in addition to required screening when abutting a residential district, school, or a street frontage. Trees bordering the parking structure shall be of a species that will obtain a mature height of not less than the height of the structure. The trees shall be of a species or shall be located or trimmed in such a way as to prevent people from using them to gain unauthorized access to otherwise secured areas.

b. Abutting Residential Zone, School, or Public Street. All sides of a parking structure abutting a residential zone, school or public street shall be screened by vines or other decorative screen approved by the Director of Development Services.

c. Wheel Stops. No vehicles shall be permitted to overhang required landscape areas behind wheel stops. See Section 21.41.269 for requirements.

4. **Yards and Parking Lots Near Residential District and Schools.**

a. **Residential (R-3, R-4), Commercial, Mixed-Use, and Light Industrial (IL) Districts.** A minimum five foot (5') wide landscaped strip shall be provided as a buffer along all yard areas abutting or adjacent to an alley, a residential district or school. This area shall be planted fifteen feet (15') on center with broad leaf evergreen trees and minimum twenty-four inch (24") box size.

b. **Medium Industrial (IM), General Industrial (IG) and Port-related Industrial (IP) Districts.** A minimum fifteen foot (15') wide landscaped strip shall be provided along the full extent of the property line between the two (2) districts. This area shall be landscaped with one broad leaf evergreen tree, of minimum twenty-four inch (24") box size, for each fifteen (15) linear feet along the property line, as well as appropriate shrubs and groundcover.

5. **Landscaping Over Parking Garages and Other Green Roofs.**

a. Landscaped areas on top of parking garages or other green roofs shall factor in the structural integrity of the building;

b. The landscaped areas shall be identified as requiring shallow soils (extensive) or deep soils (intensive);

c. Extensive green roofs shall contain less than six inches (6") deep of soil to promote plant growth;

d. Intensive green roofs shall contain deeper soils to support a deeper layer of growing medium; and

e. Landscaping over parking garages and other green roofs shall contain irrigation and maintenance measures.

6. **Other Yard Areas.** There shall be a minimum of one (1) tree provided for each one hundred twenty-five (125) square feet of other required yard area on the lot. In addition, there shall be a minimum of three (3) shrubs provided per tree.

7. **Fences and retaining walls.** All required fences and retaining walls shall be landscaped with vines planted no more than ten feet (10') on center on all accessible sides of a wall or alternative plant materials approved by the Director of Development Services.

C. **Plant Size.** All the required plant materials shall be not less than the following sizes:

1. **Trees.** For required on-site trees, at least twenty-four inch (24") box and seven foot (7') in height;

2. **Shrubs.** For required shrubs, at least five (5) gallons; and

3. **Mulch.** A minimum of three-inch (3") mulch shall be applied on all exposed soil services of landscaped areas.

D. **Substitutions.** The following substitutions for required landscaping materials may be made subject to approval of the Director of Development Services:

1. Three (3) fifteen (15) gallon trees for one (1) twenty-four inch (24") box tree;

2. One (1) thirty-six inch (36") box tree for two (2) twenty-four inch (24") box trees;

3. One (1) forty-eight inch (48") box tree for four (4) twenty-four inch (24") box trees;

4. One (1) twenty-four inch (24") box tree for five (5) five (5) gallon shrubs; and

5. Five (5) one (1) gallon shrubs for one (1) five (5) gallon shrub.

E. **Planting Distance Between Trees.** Adding the diameter of two (2) adjacent tree canopies and dividing by two (2) shall determine planting distance between two (2) trees. Distance between trees shall not be less than fifteen feet (15') or greater than twenty-five feet (25').

F. Plant Height. Plant height shall not exceed three feet (3') in corner cutoff areas.

G. **Green Building Development Standards.** In addition to the above requirements, projects requiring Site Plan Review shall comply with the Green Building Development Standards located in Section 21.45.400.

H. **Exceptions.** The Site Plan Review Committee may waive any of the landscape standards if it finds that such changes will create a more functional, water or energy efficient, sustainable or cohesive design. (ORD-19-0028 § 23, 2019; ORD-10-0031 § 6, 2010)

21.42.050 Landscaping standards—Public right-of-way (Parkway).

A. **Responsibility.** Pursuant to the requirements of this Chapter, the owner of private property adjoining the public right-of-way shall be responsible to plant, install and maintain landscaping in the area between the curb and the private property line for the entire frontage of the property. For any landscaping or paving in the parkway that does not conform or comply with the requirements of this Chapter, the City of Long Beach shall not be responsible for any loss or damage to such landscaping or paving materials in the parkway, such as cast-in-place concrete or paving units set on concrete, associated with street, curb or sidewalk repairs, or any other municipal repair or maintenance function.

B. **Street Trees.**

1. **Provision of Trees.** One (1) large canopy street tree, of not less than twenty-four inch (24") box size, shall be provided for each twenty-five feet (25') of property line length whenever a new dwelling unit is added to the adjoining property or new development requiring discretionary approval, Site Plan Review, or a fence built under the special fence height provisions. Such street tree shall be of a species approved by the Director of Public Works and shall be provided with root barriers and irrigation according to the specifications of the Director of Public Works.

2. **Exceptions.** Street trees shall be spaced a reasonable and safe distance from driveways, light standards, intersections, utility poles and street furniture and shall be located only in the prescribed width of parkway at least thirty inches (30") wide between the sidewalk and curb. An in-lieu fee shall be provided for any tree required in Subsection 21.42.050.B.1 that is not allowed by these. Such fee shall be established by the City Council by resolution and shall only be used for planting street trees in other locations that do comply with these standards. Such fee shall be paid to the Director of Public Works, and shall be based on the actual cost to the Department of Public Works to obtain and plant a tree.

3. **Removal.** No street tree shall be removed unless found by the Director of Public Works to be dead, dying, or a public hazard due to damage to curb, gutter, sidewalk or roadway or potential for falling, or for replacement of trees in an approved street tree program. Such approval shall be recorded with the Department of Development Services before the tree is removed.

C. **Parkway Landscaping.**

1. **Provision of Landscaping.** The area between the sidewalk and the curb and between the sidewalk and the private property line, if any, shall be landscaped primarily with live plant material and maintained in a neat and healthy condition. Nonliving material and decorative elements may be used within the parkway in accordance with the provisions of this Chapter. The owner of private property adjoining the public right-of-way shall be responsible for planting and maintaining such landscaping. Sidewalk width shall be four feet (4') or, if adjoining the curb, five feet (5'), as provided in Chapter 20.08.

a. **Applicability of additional requirements.** At the time of new development involving Site Plan Review from the Planning Bureau or when a complete Landscape Document Package submittal is required, the Planning Bureau may place additional requirements for parkway landscaping beyond the above, e.g., requiring low to very low water usage plant materials, as defined by WUCOLS, over at least ninety percent (90%) of the total landscaped area.

2. **Live Planting Material.** Groundcover of not more than eight inches (8") in height, accent plantings or shrubbery not more than thirty-two inches (32") in height and street trees are the only plant materials allowed in the parkway. The planting of low-water demand and drought-tolerant plant materials shall be encouraged by the City of Long Beach. Grass (turf) and other high water use

plants, characterized by a WUCOLS plant factor of 0.7 to 1.0, are prohibited in parkways and street medians. Trees shall be allowed in parkways and street medians with preference given to native, low water use trees. All irrigation systems shall limit water use to the maximum extent feasible. Automatic drip irrigation and similar low volume systems are encouraged and, if installed, shall be maintained so as to conserve water, and shall not cause water to runoff into the sidewalk or street or pond within the parkway. Use of reclaimed water for irrigation is encouraged. If permanent irrigation systems using potable water are included in the landscape plan, they shall use water conserving emitters (e.g., microspray) and drip irrigation only. Use of reclaimed water ("gray water" systems) and rainwater catchment systems are encouraged. Weather based irrigation controllers and, where feasible, other water conservation measures shall be required.

3. **Nonliving Material.** Permeable groundcovers that accept foot traffic, such as decomposed granite, inorganic and organic mulches, and modular paving units set on sand, are the only nonliving materials allowed in the parkway and shall not cover fifty percent (50%) or more of the total parkway area.

4. **Decorative Elements.** Decorative stone, wood or other elements that are smooth-surfaced are allowed in the parkway, and shall not project more than eight inches (8") above the surface.

5. **Exceptions.** The paving of the parkway shall be prohibited, except as follows:

a. Rights-of-way subject to major uses for commercial or retail purposes, or abutting a major arterial or regional corridor street as designated in the Transportation Element of the General Plan, may be paved for the full depth of the curb to property line area as determined by the City Engineer and the Director of Development Services;

b. The paving of the parkway is installed by a public utility, the City of Long Beach or another governmental agency for a public purpose;

c. The paving of the parkway is for a City-approved driveway;

d. A paved parkway was approved with the subdivision map for the property; or

e. A standards variance is approved. Such standards variance shall not require public notice and shall be charged the "mini-variance" fee.

6. **Approval of Paving.** If an exception is allowed, the parkway may be paved according to the specification of the Director of Development Services. Prior to paving the parkway, the adjoining property owner must obtain a street improvement permit from the Director of Public Works as provided in Chapter 14.08 of this Code.

D. **Parkway Maintenance and Access.**

1. **Maintenance of Landscaping.** The owner of private property adjoining the public right-of-way shall be responsible for planting and maintaining parkway landscaping free and clear of refuse, noxious weeds, hazardous materials and plants bearing thorns, stickers or other potentially injurious parts. Plants, mulches and inorganic groundcover materials shall not be allowed to overgrow or spill over the edge of the sidewalk or curb.

2. **Maintenance of Traffic Lines of Sight.** For purposes of pedestrian and vehicular safety, all parkway landscaping shall be maintained so as not to interfere with necessary vehicular or pedestrian traffic lines of sight, including views of traffic signage and signals and clear views of vehicles within the roadbed or exiting driveways. Such standards, which include limitations on taller landscape elements within street intersection areas, shall be determined by the City Engineer.

3. **Access through Parkways.**

a. In order to maintain access between the sidewalk and legally parked cars on the curb, a minimum eighteen-inch (18") wide strip or path that accepts foot traffic shall be maintained abutting and parallel to the curb adjacent to legal parking spaces. Additional space may be required as needed at public transit stops at the direction of the City Engineer.

b. In order to prevent obstructions to public access across parkways, continuous hedge-like plantings shall be prohibited. Single specimen shrubs or groupings of elevated landscape materials, including accent plantings or shrubbery of

more than eight inches (8") in height, decorative rock and other elements, shall not extend more than six feet (6') along a parkway as measured parallel to the curb, and must be spaced at least thirty-six inches (36") apart as measured parallel to the curb.

c. The berming of earth or other landscape materials of more than twelve inches (12") in height above the sidewalk at its highest point, or the creation of a bioswale or depression of more than twelve inches (12") in depth at its lowest point, shall be prohibited.

d. Fencing of any kind shall be prohibited in parkways, except for curbing of not more than six inches (6") in height intended to contain groundcover material. (ORD-23-0052 § 6, 2023; ORD-19-0007 §§ 4—6, 2019; ORD-16-0028 § 11, 2016; ORD-10-0031 § 6, 2010)

21.42.060 Model Water Efficient Landscaping Ordinance Requirements.

A. Property owners or their building or landscape designers, including anyone requiring a building or planning permit, plan check, or landscape design review from the City, are constructing a new (Single-Family, Multi-Family, public, institutional, or Commercial) project with a landscape area greater than five hundred (500) square feet, or rehabilitating an existing landscape with a total landscape area greater than two thousand five hundred (2,500) square feet, shall comply with Sections 492.6(a)(3)(B) (C), (D), and (G) of the MWELO, including sections related to use of Compost and mulch as delineated in this Section.

B. The following compost and mulch use requirements that are part of the MWELO are now also included as requirements of this ordinance. Other requirements of the MWELO are in effect and can be found in 23 CCR, Division 2, Chapter 2.7, and in LBMC Section 21.42.035.

C. Property owners or their building or landscape designers that meet the threshold for MWELO compliance outlined in the Section above shall:

1. Comply with Sections 492.6 (a)(3)(B)(C),(D) and (G) of the MWELO, which requires the submittal of a landscape design plan with a soil preparation, mulch, and amendments section to include the following:

a. For landscape installations, Compost at a rate of a minimum of four (4) cubic yards per one thousand (1,000) square feet of permeable area shall be incorporated to a depth of six (6) inches into the soil. Soils with greater than six percent (6%) organic matter in the top six inches (6") of soil are exempt from adding Compost and tilling.

b. For landscape installations, a minimum three inch (3") layer of mulch shall be applied on all exposed soil surfaces of planting areas except in turf areas, creeping or rooting groundcovers, or direct seeding applications where mulch is contraindicated. To provide habitat for beneficial insects and other wildlife up to five percent (5%) of the landscape area may be left without mulch. Designated insect habitat must be included in the landscape design plan as such.

c. Organic mulch materials made from recycled or post-consumer materials shall take precedence over inorganic materials or virgin forest products unless the recycled post-consumer organic products are not locally available. Organic mulches are not required where prohibited by local fuel modification plan guidelines or other applicable local ordinances.

2. The MWELO compliance items listed in this Section are not an inclusive list of MWELO requirements; therefore, property owners or their building or landscape designers that meet the threshold for MWELO compliance outlined in this Section shall consult the full MWELO for all requirements.

D. If, after the adoption of this ordinance, the California Department of Water Resources, or its successor agency, amends 23 CCR, Division 2, Chapter 2.7, Sections 492.6(a)(3)(B) (C), (D), and (G) of the MWELO September 15, 2015 requirements in a manner that requires City to incorporate the requirements of an updated MWELO in a local ordinance, and the amended requirements include provisions more stringent than those required in this Section, the revised requirements of

23 CCR, Division 2, Chapter 2.7 shall be enforced.
(ORD-21-0040 § 12, 2021)

CHAPTER 21.43 FENCES AND GARDEN WALLS

21.43.010 Permitted.

Fences and garden walls are permitted accessory structures in all zones, subject to the conditions and requirements set forth in this Chapter.

(Ord. C-6533 § 1 (part), 1988)

21.43.020 Height limits.

Fence and garden wall heights shall not exceed the maximum heights set forth in Table 43-1. Fence heights shall be measured from grade adjoining the fence on the public right-of-way side of the fence (for fences adjoining the public right-of-way) and the average grade of both sides of the fence (for fences between two (2) private properties). For fences in flood hazard zones where the Building Code requires the finish floor of a building to be constructed at or above the top of the flood plain, fence height shall be measured from the top of the flood plain.

(ORD-19-0028 § 24, 2019; Ord. C-7247 § 24, 1994; Ord. C-7127 § 6, 1993: Ord. C-6933 §§ 35, 36, 1991; Ord. C-6684 § 36, 1990; Ord. C-6533 § 1 (part), 1988)

21.43.030 Prohibited fence and wall materials.

Barbed wire or similar fencing with sharp, protruding objects capable of cutting or puncturing a person is prohibited, except in the IM, IG, and IP Zones when located atop a fence more than six feet (6′) in height. In all other zones, such objects shall not be attached to, imbedded in, or laid upon any fence or wall. This restriction does not include decorative wrought iron.

(Ord. C-7360 § 11, 1995: Ord. C-6533 § 1 (part), 1988)

Table 43-1
Fence and Garden Wall Height Limits

Zone Districts	Maximum Permitted Height(a)
1. Residential	
-Front yard	3 ft.[(b), (f)]
-Other yard area	6 ft. 6 in.
-Outside of required yard area	10 ft.
-Abutting a nonresidential district or use	8 ft.
-Abutting an alley, flood control channel, or other public right-of-way other than a street	8 ft.[(c)]
-Abutting a major arterial/regional corridor	8 ft.[(d)]
2. Commercial and industrial	
-Within required street frontage setback	3 ft.[(e)]
-Abutting residential front yard	3 ft.
-Abutting residential side or rear yard	8 ft.
-Other yard	12 ft.

Zone Districts	Maximum Permitted Height(a)
3. Institutional	
-Front yard	3 ft.
-Other yard	8 ft.
4. Park	
-Within ten foot (10′) yard area abutting a public street	6 ft.[(g)]
-Other yard	12 ft.[(g)]
5. Public right-of-way	As determined by the City Engineer
6. All zones—corner cutoff area	3 ft.

(a) The limitations shall not apply in the following instances:

i) Where a greater height is required by any other City ordinance; or

ii) Where a greater height is required by a conditional approval of a permit pursuant to this Title or is required by State or Federal law; or

iii) Where a wall return of greater height is allowed;

iv) In corner cutoff areas, chain link and wrought iron/metal tubing fences more than three feet (3′) in height are allowed if they do not obstruct visibility.

(b) In the area designated as the special fence height area, as designated by resolution of City Council, the fence height in the front yard setback shall be increased to four feet (4′), provided the additional foot of height is wrought iron or chain link.

(c) Only applicable for rear and side lines that abut an alley or other public right-of-way other than a street, or a flood control channel.

(d) Only applicable for 1) a rear property line that abuts a regional corridor, boulevard, or major avenue as designated in the Mobility Element of the General Plan, and 2) side property line(s) of a reverse corner lot abutting a regional corridor, boulevard, or major avenue, and in a continuous formation with the rear property lines of the remainder of the block facing said right-of-way.

(e) Industrially zoned properties may construct a twelve foot (12′) high wrought iron/metal tubing fence within the required street frontage setback area.

(f) Fence height may exceed three feet (3′) in the front yard of residential lots located in high crime areas, through approval of an administrative use permit. (See Section 21.52.231.5 for criteria.)

(g) Wrought iron fences that exceed these height limits may be approved pursuant to site plan review for a development project, Section 21.25.508.

(ORD-19-0028 § 25, 2019; Ord. C-7607 §§ 13, 16, 1999; Ord. C-7378 § 18, 1995)

CHAPTER 21.44 ON-PREMISES SIGNS*

21.44.010 Purpose.

This chapter provides standards for on-premises signs to safeguard life, health, property, safety, and public welfare, including aesthetics and the visual environment, while encouraging creativity, variety, compatible design, and enhancement of the City's image. The City recognizes that the location, number, size and design of signs significantly influences the City's visual environment and the perception of the City's economic condition. The specific purposes of this chapter are to:

A. Provide each sign user an opportunity for effective identification by regulating the time, place, and manner under which signs may be displayed;

B. Maintain a content-neutral approach to sign regulation so as not to inhibit protected forms of freedom of expression;

C. Regulate the number and size of signs according to standards consistent with the purpose of the City's various zoning districts and the intent of the Zoning Regulations;

D. Protect all zoning districts from the adverse impacts of excessive numbers or sizes of signs, and signs of poor quality design;

***Editor's note**—ORD-13-0014 § 19(Att. A), adopted Sept. 3, 2013, amended Ch. 21.44 in its entirety to read as herein set out. Former Ch. 21.44 §§ 21.44.010—21.44.400, pertained to similar subject matter, and derived from Ord. C-6533, § 1(part), 1988; Ord. C-6595, § 12, 1989; Ord. C-6822 § 18, 1990; Ord. C-7032 §§ 3—35, 1992; Ord. C-7064, § 5, 1992; Ord. C-7326 § 24, 1995; Ord. C-7429 § 2, 1996; Ord. C-7500, §§ 8—17, 22, 23, 1997; Ord. C-7550, §§ 10—14, 19, 20, 1998; Ord. C-7617 § 3, 1999; Ord. C-7629, § 1, 1999; Ord. C-7663 §§ 27, 28, 36, 1999; and Ord. C-7776 § 5, 2001.

E. Encourage creative, well-designed signs that contribute in a positive way to the City's visual environment, and help maintain an image of quality for the City;

F. Ensure that signs are responsive to the aesthetics and character of their particular location (adjacent buildings and surrounding neighborhood), and that signs are compatible and integrated with their building's architectural character and design (including historic elements), and with other signs on the site; and

G. Ensure the quality of the City's visual environment and appearance by avoiding sign clutter, signs of excessive size, and signs of poor quality design, and by subjecting certain signs to the necessary discretionary processes.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.020 Accessory uses.

On-premises signs are permitted in all districts as accessory uses only, subject to the provisions outlined in this chapter.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.030 Sign permit required.

A. **Required.** A sign permit is required to display, enlarge, modify, relocate or change in any way, other than to perform general maintenance, repair or complete removal, an on-premises sign in any zoning district, unless such action is expressly exempted by this chapter.

B. **Jurisdiction.** The Department of Development Services shall be responsible for reviewing sign permit applications and issuing sign permits.

C. **Filing of Application.** Applications for sign permits shall be filed with the Director of Development Services on forms provided by the Department of Development Services. Filing fees, as established by resolution of the City Council, shall be filed with the application. Additional information shall be provided as required by the Director of Development Services.

D. **Time Limit.** Permits shall be used within one hundred eighty (180) days of issuance, otherwise they shall be null and void.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.035 Discretionary processes.

A waiver from the provisions of these sign regulations may be considered through the procedures set forth in this Section. However, any prohibited signs, including those listed in Section 21.44.600 and any sign not specifically permitted, shall not be approved except through the provisions of Division III (Standards Variance) of Chapter 21.25—Specific Procedures.

A. **Sign standards waiver.** Repealed.

B. **Creative sign permit.**

1. This section establishes standards and procedures for the review and approval of Creative Sign Permits. The purposes of the Creative Sign Permit are to:

   a. Encourage signs of unique design that exhibit a high degree of imagination, inventiveness, spirit, and thoughtfulness; and

   b. Provide a process for the application of sign regulations in ways that will allow creatively designed signs that make a positive visual contribution to the overall image of the City, while mitigating the impacts of large or unusually designed signs.

2. **Applicability.** An applicant may apply for a Creative Sign Permit in order to request approval of development standards that differ from the provisions of this chapter, but comply with the purpose and findings of this section. However, the Creative Sign Permit process shall not be used to allow any prohibited sign type or feature.

3. **Application.** A Creative Sign Permit application shall include all information and materials required by the Department, and the filing fee as specified in a fee resolution to be adopted by the City Council.

4. **Approval authority.** An application for a Creative Sign Permit shall be subject to review and approval or disapproval by the Site Plan Review Committee, under the procedures set forth in Chapter 21.25 (Specific Procedures), Division V—Site Plan Review.

5. **Findings.** The Site Plan Review Committee shall not approve a Creative Sign Permit unless the proposed sign meets the following design criteria (in addition to the findings required in Chapter 21.25—Specific Procedures):

   a. **Design quality.** The sign shall:

      i. Constitute a substantial aesthetic improvement to the site and shall have a positive visual impact on the surrounding area;

      ii. Be of unique design, and exhibit a high degree of imagination, inventiveness, spirit, and thoughtfulness; and

      iii. Provide strong graphic character through the imaginative use of color, graphics, proportion, quality materials, scale, and texture.

   b. **Contextual criteria.** The sign shall contain at least one (1) of the following elements:

      i. Classic historic design style;

      ii. Creative image reflecting current or historic character of the City; or

      iii. Inventive representation of the logo, name, or use of the structure or business.

c. **Architectural criteria.** The sign shall:

i. Utilize or enhance the architectural elements of the building; and

ii. Be placed in a logical location in relation to the overall composition of the building's facade and not cover any key architectural features and details of the facade.

d. **Impacts on surrounding uses.** The sign shall be located and designed not to cause light and glare impacts on surrounding uses, especially residential uses.

C. **Sign Program.**

1. This section establishes standards and procedures for the review and approval of Sign Programs. The purpose of a Sign Program is to:

a. Ensure that all signs on a subject property are of complementary style and design, and are compatible with the architecture and theme of the property,

b. Provide a process for the review of said signs to ensure that new developments or major remodels achieve the highest quality of design by complementing the development with high-quality signs, and

c. Establish special sign criteria and standards for a given property when such additional regulation or waivers from the provisions of this chapter are considered appropriate and beneficial.

2. **Applicability.** Application for a Sign Program shall be required for the following:

a. Any sign application submittal for five (5) or more new or replacement signs (not including minor, exempt, or temporary signs) intended to be placed on a site,

b. Any new commercial, industrial or, institutional building(s),

c. Any new mixed-use development with three (3) or more nonresidential tenant spaces, and

d. Any residential project consisting of five (5) or more new dwelling units.

3. **Application.** A Sign Program application shall include all information and materials required by the Department, and the filing fee as specified in a fee resolution to be adopted by the City Council.

4. **Approval authority.** An application for a Sign Program shall be subject to review and approval or disapproval by the Site Plan Review Committee, under the procedures set forth in Chapter 21.25 (Specific Procedures), Division V—Site Plan Review.

5. **Findings.** The Site Plan Review Committee shall not approve a Sign Program unless the proposed Sign Program meets the following design criteria (in addition to the findings required in Chapter 21.25—Specific Procedures):

   a. All signs in the Sign Program are designed in such a manner so as to be internally consistent, coordinated, and whole within themselves, and harmonious with any existing signs remaining on the site.

   b. Any existing signs on the site, if they are to remain, are of high quality design and materials, and complement the existing or proposed building and architecture, and will be complemented by the new signs in the Sign Program as well.

   c. All signs in the Sign Program will complement and enhance the architectural theme of the subject property.

   d. All signs in the Sign Program comply with the standards of this chapter, unless specific exemptions have been granted in the interest of enhanced design and compatibility, and such exemptions are not contrary to the intent of this chapter.

6. **Waiver of standards.** A waiver from the development standards of this chapter may be granted for signs in a Sign Program if the findings required for a Creative Sign Permit are made by the Site Plan Review Committee, and the waiver will achieve the specified purpose of a Creative Sign Permit. However, prohibited signs shall not be approved through a Sign Program.

D. **Neon Outlining or Architectural lighting of Buildings.** Neon tubing lighting, stringed lighting, and other architectural lighting used to outline buildings or emphasize architectural elements of a building shall not be considered signs or sign illumination, but rather an architectural element subject to review and approval through the site plan review process as specified in Division V of Chapter 21.25—Specific Procedures.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.050 General performance and development standards for all signs.

A. **Signs Subject to Standards.** All signs shall be subject to the development standards specified in this chapter. The only exceptions shall be for signs that receive waivers from specific standards subject to the Creative Sign Permit or Standards Variance processes; all other standards shall continue to apply.

B. **Measurement of sign area.** Where sign area is required to be measured for the purposes of this chapter, it shall be measured in accordance with the definition of "sign area" contained in Section 21.15.2530. See Figure 44-1.

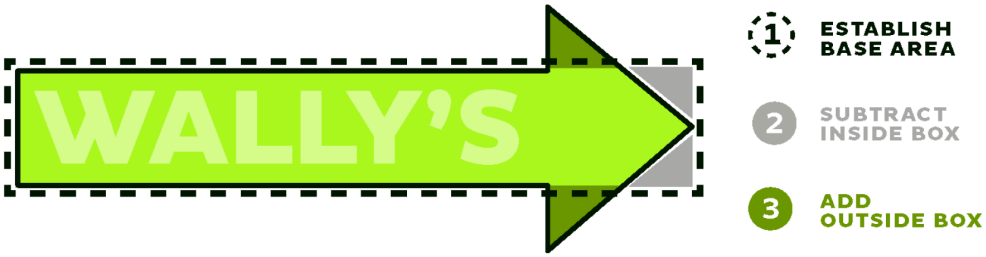


Figure 44-1. Measurement of sign area.

C. **Maintenance.** All signs shall be kept in a well-maintained condition. No sign shall be displayed which, in the judgment of the Director of Development Services, or his or her designee, is not in good repair and maintained in a safe condition. All signs must be kept free from deterioration, free from defective parts, free from burned out lamps and peeling paint, and must be able to withstand the wind pressure for which it was originally designed.

D. **Removal of signs.** The following shall apply to removal of signs:

1. **Time limit.** Except as otherwise specifically provided for in this chapter, a sign shall be removed within thirty (30) days of disuse of the business, building, or other establishment for which it was emplaced.

2. **Repair of building after removal.** Within thirty (30) days of the removal of a sign from a building, the wall of the building shall be repaired to remove any blemish left by the removal.

3. **Complete removal.** When a sign is removed, all supporting structures, cabinets, frames and other appurtenances of the sign shall be removed as well.

E. **Prohibited sign copy.** The primary purpose of an on-premises sign is identification, and not advertising; therefore no major sign, special major sign, or minor sign subject to this chapter shall display prices for products or services. Changeable copy signs, promotional activity signs, electronic message center signs, and gas station price signs are exempt from this restriction.

F. **Contact information.** In addition to other permitted sign copy, up to three (3) square feet of the allowable sign area may be used to display contact information for the on-premises establishment where the sign is located. This may take the form of telephone numbers, email or web addresses, and the like.

G. **Clearance.** The vertical clearance between grade and the lowest point of a sign projecting over a pedestrian or vehicular path shall be eight feet (8') for pedestrian use and fifteen feet (15') for vehicular use. No sign shall project over an alley or at-grade parking space.

H. **Light control.** No sign or sign lighting source shall cause or allow trespass of light onto any adjacent property, any residential dwelling unit, or into the public right-of-way.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.060 Design standards for all signs.

The following standards shall apply to the design of all signs subject to this chapter, for the purpose of carrying out the intent and achieving the goals of this chapter set forth in Section 21.44.010 - Purpose:

A. **Character.** Signs shall enhance the public realm and aid in the creation of a street's character. No sign shall impede pedestrian traffic, block sight lines in the public viewshed, or disturb adjacent residences.

B. **Complementary.** The color, material, scale, lettering, and lighting shall complement the surrounding street environment and buildings that the sign addresses.

C. **Size.** Signs shall never overpower the building. The sign shall fit comfortably into the architecture and character of the building or storefront. Signs shall be mounted in a manner that does not detract from the building's architectural presence and aesthetics.

D. **Audience.** Signs intended for tourists, locals, or different age groups can suffer from poor sign design. Therefore, regardless of the intended audience, sign design shall conform to these design principles.

E. **Concise.** Information on signs shall be brief, clear, and simple with appropriately-sized lettering, and a clear information hierarchy. When appropriate, symbols may be used in place of text.

F. **Illumination.** Lighting used with signs shall be focused and minimal, especially for exterior-lit signs. Lighting shall be in scale with the sign and building. Design of sign illumination shall make every effort to avoid contributing to night-sky light pollution.

G. **Consistency.** Signs shall be consistent across a building or property. If multiple tenants are listed on a single sign or a multi-tenant building, variation between size and typeface of tenant names and color shall be limited to a palette of three (3) or fewer options.

H. **Timelessness.** Sign design should convey a timeless character of a street, place, or business, and should avoid design tendencies associated with fleeting trends. Signs also shall be designed with durable, long-lasting materials, and shall be well-maintained.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.062 Additional design standards for nonresidential signs.

In addition to the design standards for all signs specified in Section 21.44.060, the following design standards shall apply to all nonresidential signs:

A. Signs should be consistent with the overall design and identity of the building, including the architecture and landscaping. Signs should complement the overall aesthetic of the building and site.

B. If more than one (1) sign type is necessary on a single facade, all signs shall be scaled in a clear hierarchy and shall address different viewer orientations and audiences.

C. Buildings with multiple tenants or storefronts shall use the same sign strategy at every entrance, storefront, or tenant suite, in order to reduce sign confusion and present an organized visual environment.

D. If multiple tenants are listed on a single sign, size and typeface of tenant names shall be kept consistent.

E. For sites with several buildings, or buildings that are part of an industrial, business, or institutional campus, sign consistency shall be ensured through the following:

1. Signs shall be visible from the public rights-of-way bounding the site, and shall communicate the necessary information clearly.

2. Since campuses may house multiple tenants of differing types, the design identity of signs shall be capable of incorporating an array of styles and typefaces for the differing names and logos. However, the size of tenant names, logos, and color palettes shall be consistent with each other.

F. Pedestrian-oriented signs are encouraged. Signs shall be scaled appropriately, including window signs, projecting (blade) signs, directory signs, and other pedestrian-oriented signs.

G. Illumination should be used to accent signs, consistent with the building's character. Trespass of light and glare from sign illumination onto any adjacent dwelling units or other property, whether residential or nonresidential, is strictly prohibited.

H. Signs and wayfinding features shall be incorporated with public art or placemaking objects where possible.

I. Placement of signs in the public right-of-way should be uniform and designed at the correct scale for the intended reader, for both motorists and pedestrians.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.064 Additional design standards for residential signs.

In addition to the design standards for all signs specified in Section 21.44.060, the following design standards shall apply to all residential signs:

A. Signs should be integrated with the building's architecture and landscaping. Signs should be consistent with the design approach and convey a clear hierarchy of information.

B. Signs shall identify primary entrances, the street address, and other necessary information, while maintaining an understated and minimal aesthetic.

C. Mixed-use (commercial and residential) projects with commercial uses on the ground floor shall comply with the design standards for nonresidential signs specified in Section 21.44.062.

D. Illumination shall be designed to ensure adequate sign visibility and safety, but shall never create light trespass into residential units or onto adjacent properties.

(ORD-13-0014, § 19(Att. A), 2013)

DIVISION I.

MAJOR SIGNS

21.44.100 Development Standards—Major signs.

Wall signs, projecting (blade) signs, freestanding or monument signs, awning signs, and building identification signs shall all be considered major signs. A freestanding sign and a projecting sign may not be located on the same property, but any other major sign combination is possible subject to the development standards outlined in this chapter. See Figure 44-2, Major Signs.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.102 Copy.

For all major sign types, sign copy shall be limited to the identification of the business, and up to two (2) products or services sold or available on the premises. Copy shall not be placed on the edges of any sign.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.105 Standards by zoning districts.

Each type of major sign shall be allowed in certain zoning districts as provided in Table 44-1.

Table 44-1
Zoning Districts for Major Signs

Zoning Districts	Sign Types					
	Wall sign	Projecting sign	Freestanding sign	Monument sign	Awning sign	Building Identification Sign
CNP, CNA, CNR	Y	Y	N	Y	Y	Y
CCA, CCP, CCR, CCN	Y	Y	Y	Y	Y	Y
CHW, IL, IM, IG, IP	Y	Y	Y	Y	Y	Y
R-1 and R-2 zones*	N	N	N	N	Y	N
R-3*, R-4*, and RM zones	N	N	N	N	Y	Y
I, P, PR	Y	Y	Y	Y	Y	Y
Residential and mixed-use character PDs**	Y	Y	N	Y	Y	Y

Zoning Districts	Sign Types					
	Wall sign	Projecting sign	Freestanding sign	Monument sign	Awning sign	Building Identification Sign
Commercial and industrial character PDs**	Y	Y	Y	Y	Y	Y
Abbreviations: Y = Yes (permitted), N = Not permitted, PD = Planned Development District						
* Commercial uses in these zoning districts, including legal nonconforming uses, shall be subject to the sign types restrictions specified for the CNP, CNA, and CNR districts.						
** In all PDs, sign regulations specified within each PD ordinance take precedence over the provisions of this chapter. In cases of doubt, or where the several subareas of a given PD are of differing character, the Zoning Administrator shall determine which standards should apply.						

Figure 44-2. Major Signs.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.120 Wall signs.

Wall signs are permitted for any business with frontage on a street, parking lot, public walkway within a mall, or which has exterior building frontage without facing a street, parking lot or mall.

A. **Number.** One (1) per wall, or one (1) per business for buildings with multiple tenants/businesses fronting on a street. In addition to the primary wall sign, secondary wall signs identifying up to two (2) products or services are permitted provided that the cumulative wall sign area does not exceed the allowable limits established in Subsection 21.44.120.B.

B. **Area.**

1. **Wall Facing Street.** The total area of all wall signs facing a street shall not exceed one (1) square foot of sign area per linear foot of building wall; provided, that not more than one hundred (100) square feet shall be allowed on any sign facing a residential, local or collector street and not more than two hundred fifty (250) square feet shall be allowed for any sign facing a major or minor arterial. See Figure 44-3.

2. **Wall Facing Side or Rear Yard.** The area of permitted wall signs facing side or rear yards shall not exceed one (1) square foot of sign area for each linear foot of building wall.

3. **Curved or Angled Wall on a Corner.** A curved or angled wall located on a corner shall be considered to be a separate wall for purposes of this section.

4. **Transference of Sign Area.** Allowed sign area cannot be transferred from one (1) building side or wall to another.

5. **Icons and Models.** Wall signs in the shape of icons, models, or logos shall be permitted provided that the cumulative wall sign area for all signs does not exceed the allowable limits. To calculate the area of two-dimensional (2-D) signs, the sign's length and width shall be multiplied. The area of three-dimensional (3-D) signs shall be measured as a longitudinal section of the icon or model.

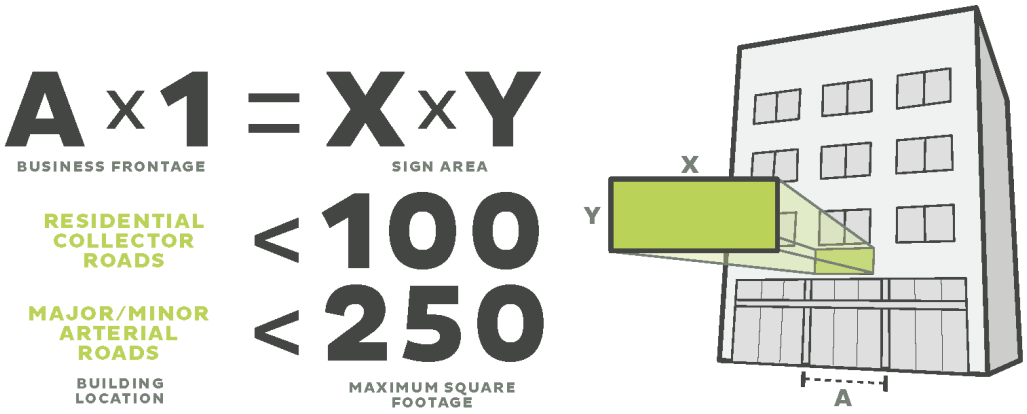


Figure 44-3. Area of a wall sign.

C. **Height.** The maximum height of wall signs above grade, to the highest point of the sign shall be as follows:

1. For a one (1) story building, the highest point of the sign shall not be located above the top of the parapet wall for a flat roof, or above the top of a mansard roof, or above the ridge of a sloped roof.

2. For a multi-story building with commercial tenants on the ground floor only, a wall sign shall not be located above the windowsill line of the second floor. This does not include building identification signs.

3. For a multi-story building with commercial tenants on the ground floor and floor(s) above, a wall sign shall be located on the same floor as said tenant, and shall not be located above the windowsill line of the floor above said tenant. Wall signs shall not be allowed for commercial tenants on the third story and above. This does not include building identification signs.

4. For buildings with glass curtain wall systems, signs shall be allowed for ground-floor tenants only and not on any stories above the ground floor. This does not include building identification signs.

D. **Location.** No wall sign shall extend beyond the perimeter of the signable area (as defined in Section 21.15.2770) on which it is displayed, or above the top of the parapet wall of a flat-roofed building, or above the top of a mansard roof. A sign displayed above the eave line of a sloped roof building shall be considered a roof sign. No wall sign shall be located upon an architectural protrusion. See Figure 44-4.

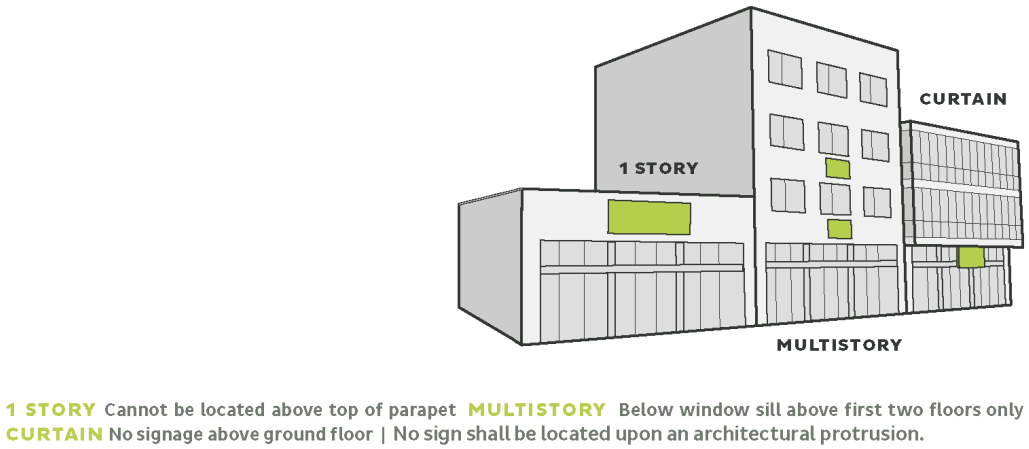


Figure 44-4. Locations of a wall sign.

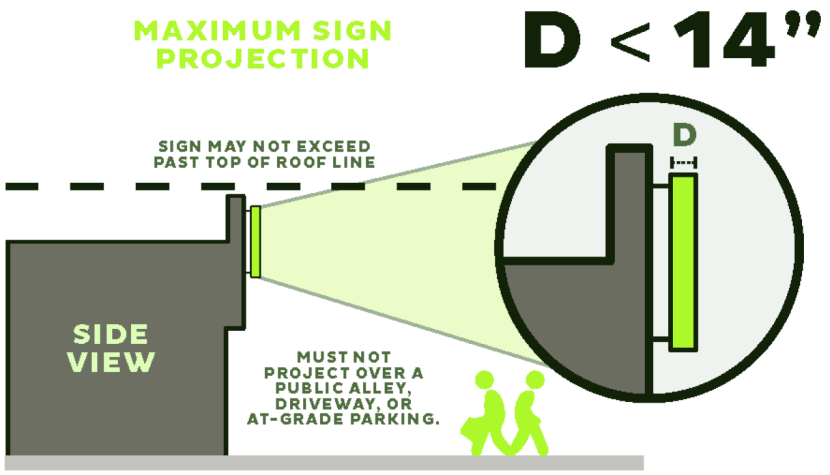


Figure 44-5. Maximum projection of a wall sign.

E. **Projection.** The maximum projection shall be fourteen inches (14"). No wall sign shall project over a public alley, driveway, or parking above grade. See Figure 44-5.

F. **Design.** The following design standards shall apply to all wall signs:

1. **Channel letters preferred.** Signs consisting of individual channel letters are strongly preferred. Exposed raceways are prohibited unless necessitated by structural considerations.

2. **Foam letters.** Foam letter signs are strongly discouraged. Foam letters must be faced with a material such as plastic or metal. Un-faced foam letters (including those that are painted only) are prohibited. Wall painted signs are preferred over foam letter signs.

3. **Cabinet signs.**

   a. New cabinet ("can") signs are strongly discouraged, except in the case of unusually shaped signs or logos that would be onerous to render in channel letter form. Channel letter signs are preferred instead.

   b. Existing cabinet signs may continue to be used and maintained, subject to the regulations of this chapter. However, upon replacement of the sign face or copy, use of a "push-through" cabinet sign face shall be required, with the sign copy rendered in relief either in front of or behind the sign face. The purpose of this regulation is to obtain higher-quality sign design for the remaining lifespan of existing sign cabinets.

4. **Flat wall signs.** Wall signs consisting of copy that is painted or otherwise applied or rendered, with no surface relief, onto a background sheet product of wood (including plywood, fiberboard, etc.), plastic, or metal, which is then affixed to the building wall, shall not be permitted, unless approved through the Creative Sign Permit process, in order to ensure that the sign is of a high-quality design. The purpose of this regulation is to avoid the use of these materials in low-quality sign designs.

G. **Wall Painted Signs.** Wall painted signs are regulated in Division II - Special Major Sign Types.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.130 Projecting (blade) signs.

Projecting signs (also known as blade signs), are permitted subject to the following provisions:

A. **Number.** A business may display one (1) projecting sign per street frontage or parking lot frontage on an adjacent property. Where freestanding signs are allowed, a projecting sign may be permitted in lieu of each freestanding sign.

B. **Area.** The maximum area of a projecting sign shall not exceed one (1) square foot per linear foot of building frontage from which the sign projects. For double-sided signs, sign area shall be taken from one (1) side of the sign only. See Figure 44-6.

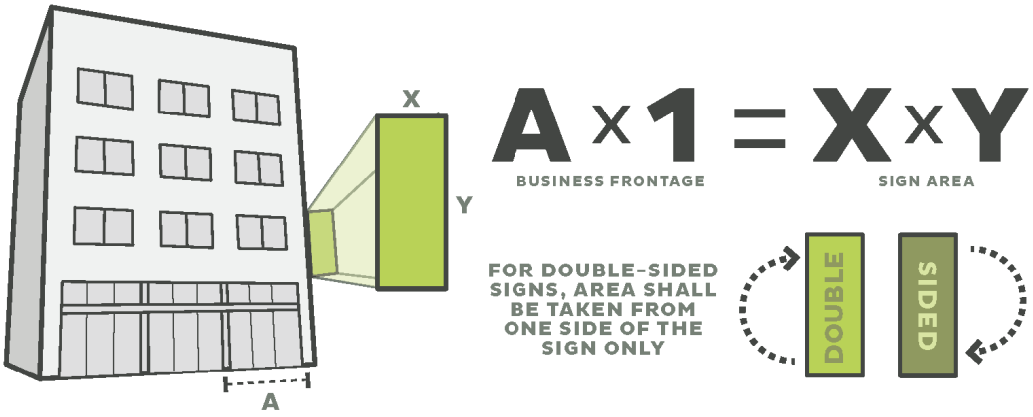


Figure 44-6. Measurement and allowable area of a projecting sign.

C. **Height.** No projecting sign shall extend above the adjacent eaves of a sloped roof. A projecting sign shall not extend more than one-third (1/3) of the sign's vertical length above the parapet line of a flat roof; or be less than eight feet (8') above the grade of the adjoining pedestrian right-of-way. A projecting sign shall be exempt from the building height limits of the zoning district.

D. **Location.**

1. Projecting signs shall be attached to a building, and not a pole or other structure.

2. For buildings with multiple businesses, multiple projecting signs shall be separated by at least twenty-five feet (25'), and only one (1) projecting sign may be located on each building corner. See Figure 44-7.

3. If any portion of a projecting sign is located above a second floor windowsill line, it shall be located a distance away from any such window(s) equal to twice the projection of the sign from the wall in which the window is located, unless the building has a glass curtain wall system.

4. For a building located on a corner lot, the projecting sign is encouraged to be located on the corner or face of the building on the street corner. A vertical projecting sign on a building corner should be mounted at a forty-five (45) degree horizontal angle so that its two (2) sides are equally visible from both streets.

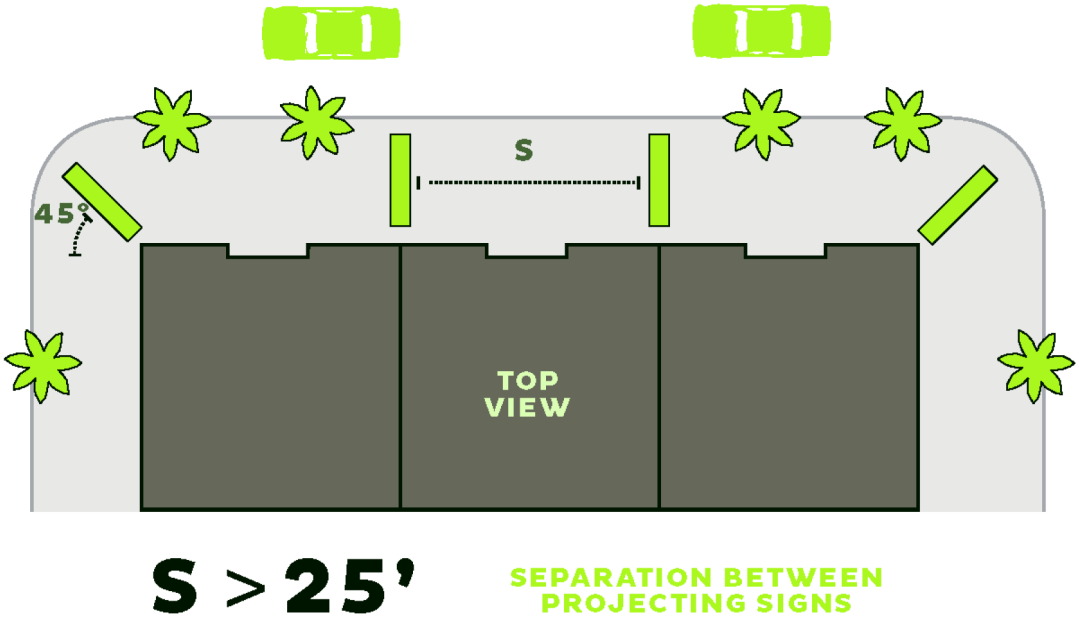


Figure 44-7. Required separation between projecting signs.

E. **Projection.**

1. No projecting sign shall project more than four feet (4') from the face of the building wall upon which the sign is mounted. If such sign projects into the public right-of-way, then an encroachment permit must be obtained from the Department of Public Works. See Figure 44-8.

2. No sign may project closer than two feet (2') to the curb line.

3. No sign may project over a public alley.

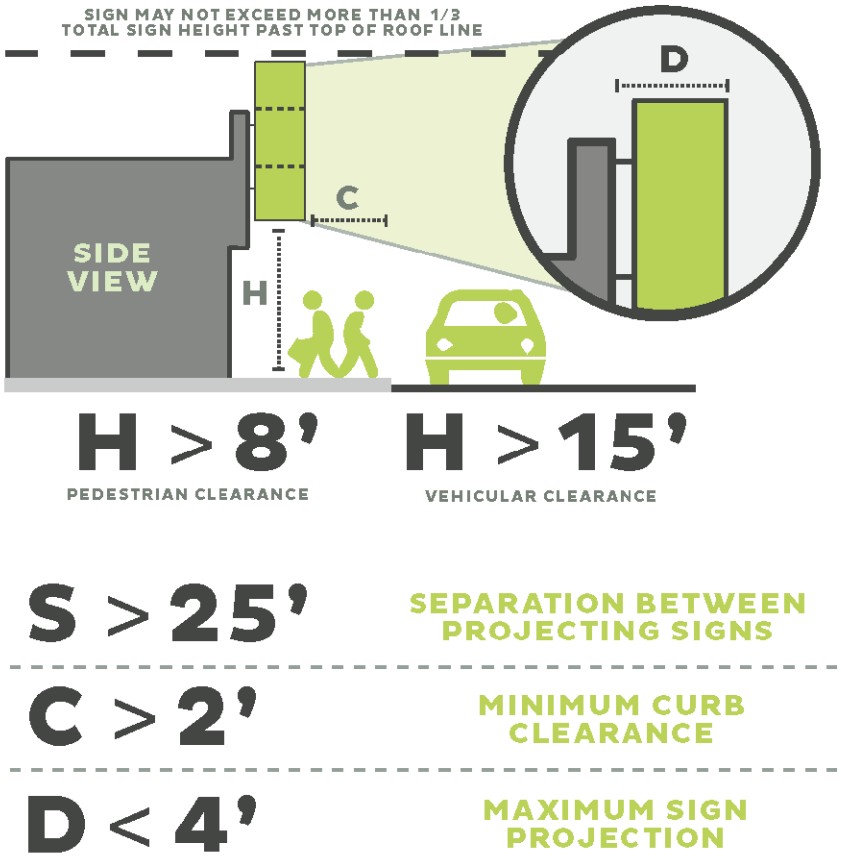


Figure 44-8. Projection and required clearance of a projecting sign.

F. **Design.** The following design standards shall apply to all projecting signs:

1. Individual channel letters on a background are preferred.

2. Plastic-faced cabinet signs are prohibited for use as projecting signs. However, other internally illuminated sign types, such as reverse-channel letter signs, are suitable for use as projecting signs.

3. Projecting signs shall be constructed of high-quality, durable materials and shall be of a permanent nature.

G. **Building permit required.** No sign permit shall be issued for a projecting sign unless a building permit also is obtained. The purpose of this requirement is to prohibit temporary, flimsy, fragile, or other projecting signs of a less-than-permanent nature that would not require a building permit for attachment to a building.

H. **Supporting Device.** Guy wires may be used for lateral support when fully within the horizontal plane of the sign. Any angle iron or secondary support, other than guy wires, must be enclosed in a form constructed of impermeable material so as not to be visible.

(ORD-13-0014 § 19(Att. A), 2013)

21.44.140 Freestanding/monument signs.

Any self-supporting permanent on-premises sign that is not attached to a building is either a freestanding sign (see Section 21.15.2580), or a monument sign (see Section 21.15.2620). Table 44-1 sets forth the zoning districts in which freestanding and monument signs are allowed. Freestanding and monument signs are permitted subject to the following provisions:

A. **Number.**

1. **Individual Businesses or Shopping Centers.** Any individual business or a shopping center may display one (1) freestanding/monument sign on a property. For each length of street frontage in excess of three hundred feet (300'), a business or group of businesses may display one (1) additional freestanding/monument sign for each additional three hundred feet (300'), or portion thereof, of street frontage abutting the developed portion of the property occupied by the businesses.

2. **Automobile Service Station.** In addition to other signs, an automobile service station may display one (1) freestanding/monument sign per street frontage for the display of fuel prices.

B. **Area.** The permitted area of freestanding/monument signs shall be as provided in Table 44-2. No sign shall be permitted to exceed the maximum area indicated, regardless of street frontage.

C. **Height.** The maximum permitted height of a freestanding/monument sign shall not exceed the limits set forth in Table 44-2. The height of a freestanding/monument sign is measured from grade to the highest point of the sign, except that the height of the freeway-oriented freestanding signs, where the freeway elevation is greater than the base of the sign, may be measured from the grade of the freeway lane nearest the sign not including on and off ramps to the highest point of the sign, as illustrated in Figure 44-9.

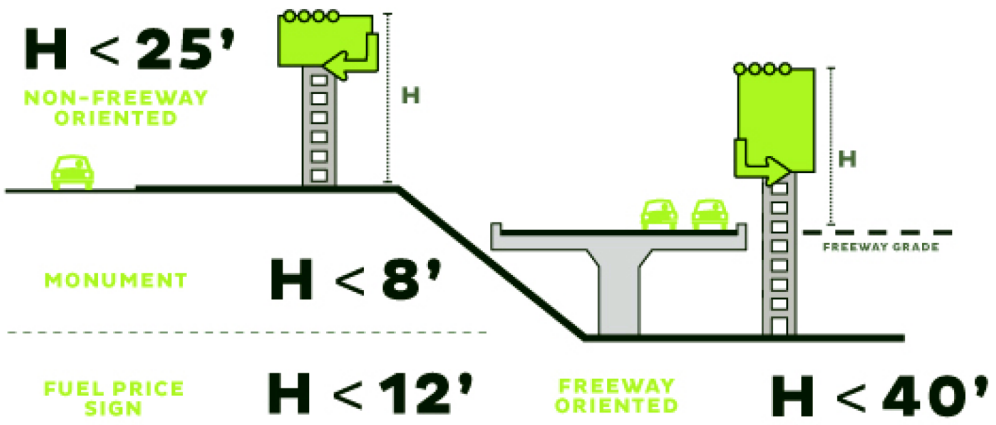


Figure 44-9. Maximum heights of freestanding signs.

D. **Location.**

1. No freestanding/monument sign shall be located in such a manner that it blocks, obscures, or obstructs existing signs, or signable area, on any building, including buildings on abutting property, nor shall any freestanding/monument sign be located in such a manner that it blocks, obscures, or obstructs another freestanding/monument sign, including one on abutting property.

2. Where more than one (1) freestanding sign is used for one (1) business or group of businesses, the minimum distance between two (2) freestanding signs on the same property shall be one hundred feet (100').

3. No freestanding/monument sign shall be located within the required corner cutoff area of a driveway, alley, or street, as defined in Section 21.15.660 and illustrated in Figure 15-4.

4. A freeway-oriented freestanding sign must be located within one thousand five hundred feet (1,500') of the intersection of the freeway off-ramp with the surface street providing access to the premises on which the sign is located.

E. **Projection and overhang.** No freestanding sign shall overhang the property line adjoining a public right-of-way unless approval has been granted by the Department of Public Works. In any case, no freestanding sign shall project closer than two feet (2') to the curb line. Neither shall any freestanding sign shall overhang the property line between parcels.

F. **Design.** The following design standards shall apply to all freestanding/monument signs:

1. New plastic sign faces on sign cabinets for freestanding/monument signs are prohibited, except for "push-through/through-the-face" types. The portion of a sign cabinet identifying individual tenants may consist of an internally-illuminated cabinet with individual plastic

faceplates for each tenant; however, these faceplates shall be push-through/through-the-face types whenever feasible. All tenant faceplates shall be of a harmonious theme, with complementary lettering, design, and colors.

2. Freestanding signs should be architectural in nature. The slab-monolith type is encouraged, or alternately a slab with an architectural base, middle, and capital; other architectural designs can be acceptable also. Freestanding signs mounted on one (1) or several bare poles are prohibited.

3. If a freestanding sign is not a slab-type, its support shall be at least half the width of the sign portion and shall be enclosed in an interesting architectural element that complements the sign structure and adjacent building(s). Uncovered structural poles are prohibited.

4. Individual channel letters on a background, reverse channel letters, or push-through/through-the-face designs are preferred, both for the main sign and the identification of tenants.

5. Any angle iron or secondary support shall be enclosed in a form constructed of impermeable material, such that the angle iron or secondary support is not visible.

Table 44-2
Permitted Size, Max. Area, and Max. Height of Freestanding/Monument Signs

Type of Freestanding/Monument Sign and Orientation	Permitted Area [(a)]	Maximum Area	Maximum Height
Freestanding sign			
Freeway-oriented [(b)]	3 sq. ft./L.F. frontage	300 sq. ft.	40 ft.
Non-freeway oriented	2 sq. ft./L.F. frontage	150 sq. ft.	25 ft.
Monument sign	1 sq. ft./L.F. frontage	100 sq. ft.	8 ft.
Fuel price sign (gas stations only)	15 sq. ft.[(c)]	15 sq. ft.[(c)]	12 ft.
(a) Square feet of sign area permitted per linear foot of frontage along the abutting street. (b) See location requirement in Section 21.44.140.D.4. (c) In addition to the permitted freestanding sign, a price sign is also permitted.			

(ORD-19-0028 § 26, 2019; ORD-13-0014 § 19(Att. A), 2013)

21.44.160 Awning (or marquee or canopy) signs.

Awning and marquee/canopy signs are permitted for each business located on the ground floor and abutting a street, parking lot or public walkway within a mall, excluding alleys and serviceways. Each awning or marquee/canopy may display one (1) sign subject to the following provisions:

A. **Area.** The area of the sign may not exceed forty percent (40%) of the total face of the awning or marquee/canopy, not to exceed one hundred (100) square feet. The face of the awning shall be measured as shown in Figure 44-10.

B. **Projection.** The sign may not project closer than two feet (2') to the curb line. Any encroachment over public property shall require approval from the Department of Public Works.

C. **Limits.** Marquee/canopy signs shall be contained entirely within the perimeter of the fascia of the marquee or canopy.

D. **Slope.** The face of the marquee, canopy or awning shall slope not more than sixty degrees (60°) from the vertical plane.

E. **Additional under-mounted signs.** In addition to a surface-mounted marquee/canopy sign, a sign which displays the business name only may be mounted on the under surface of the marquee or canopy, provided:

1. The area of the sign does not exceed eight (8) square feet;

2. The clearance from grade is eight feet (8') for pedestrian use and fifteen feet (15') for vehicular use; and

3. The signs are mounted perpendicular to the building wall.

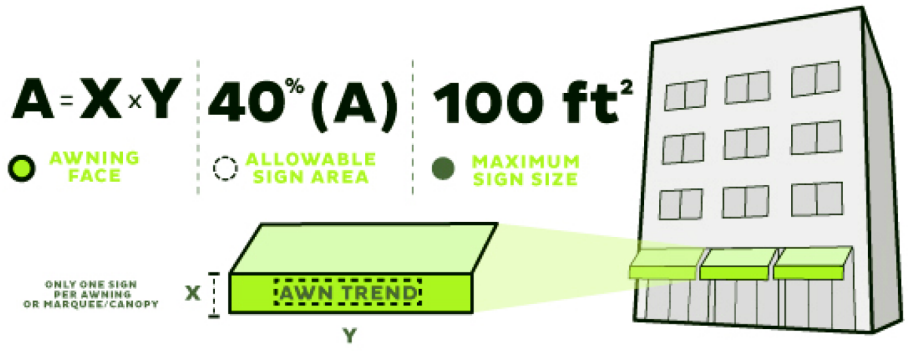


Figure 44-10. Maximum size and area measurement of an awning sign.
(ORD-13-0014 § 19(Att. A), 2013)

21.44.170 Building identification signs (commercial and residential).

A. **Commercial Buildings.** Commercial building identification signs in the form of a wall sign or a projecting sign may be displayed on any building that is composed of one (1) or more businesses and is at least four (4) stories high.

1. **Number.** One (1) building identification sign is permitted per building face/wall and shall be comprised of the business/building name and/or logo. If a projecting sign is used as the building identification sign, no other projecting sign shall be allowed for that building face, and no freestanding sign shall be allowed on the site.

2. **Area.** Commercial building identification signs shall not exceed one and one-half (1½) square feet of sign area per every linear foot of building wall and shall not exceed a maximum of three hundred (300) square feet.

3. **Placement.** No commercial building identification sign shall extend beyond the perimeter of the signable wall area on which it is placed, nor shall it be displayed above the peak of the roof or the top of the parapet of a building, or below the lower one-third (1/3) of a building on which it is placed, unless a Creative Sign Permit is approved.

4. **Projection.** The maximum projection shall be fourteen inches (14") from the face of the wall. Any building identification sign projecting over the right-of-way shall require approval from the Director of Public Works.

B. **Multifamily Residential Building Identification.** Multifamily building identification signs are permitted in the form of a wall sign, a monument sign, an awning or a marquee/canopy sign, or a projecting sign, subject to the following restrictions:

1. **Number.** One (1) sign is permitted for each street the building abuts.

2. **Design Standards.** The manner in which building identification signs may be displayed shall determine the design standards.

   a. **Wall Sign.** The identification sign shall comply with all applicable wall sign provisions of this chapter, except that the total area shall not exceed twenty percent (20%) of the signable area, nor more than five percent (5%) of the building face.

   b. **Monument Sign.** The building identification sign shall comply with all applicable monument sign provisions of this chapter, except that the maximum area shall not exceed twenty-seven (27) square feet and the maximum height above grade shall not exceed four feet (4') above grade.

   c. **Awning or Marquee/Canopy Sign.** The identification sign shall comply with all applicable awning or marquee/canopy sign provisions of this chapter.

   d. **Projecting Sign.** The identification sign shall comply with all applicable projecting sign provisions of this chapter, except that the maximum area shall not exceed twenty-seven (27) square feet.

(ORD-13-0014, § 19(Att. A), 2013)

DIVISION II.

SPECIAL MAJOR SIGNS

21.44.200 Development Standards—Special major signs.

Wall painted signs, roof signs, changeable copy signs, residential neighborhood and commercial district identification signs, and historic signs shall all be considered special major signs. These sign types occur less frequently throughout the City and require specific regulation to ensure compatible design with surrounding architecture, signs, and land uses, to ensure that the City's aesthetic goals are achieved.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.210 Wall-painted signs.

A wall-painted sign is intended to take the place of a wall sign, and is painted directly onto the building wall. Wall-painted signs fill an important niche in the sign types this chapter makes available to the public—they can be established with no building permit or structural review required, at considerably less cost than a permanent wall sign. This is advantageous to small businesses just starting out, and others in similar situations. Wall painted signs also have the potential to make a significant character-enhancing contribution to their immediate surroundings and neighborhood, becoming something of a landmark if well executed. For these reasons, wall-painted signs are preferred over foam letter wall signs in the gamut of low-cost sign types.

A. **Number, height, location and copy.** Standards for the number, height, location, and copy of wall-painted signs shall be the same as for wall signs, as specified in this chapter.

B. **Area.** In order to encourage the selection of a wall-painted sign over foam letters or other low-cost sign types, the allowable area is increased such that wall-painted signs shall not exceed one and one-half (1½) square feet of sign area per every linear foot of building wall and shall not exceed a maximum of one hundred (100) square feet on any sign facing a residential, local or collector street, and not more than two hundred fifty (250) square feet for any sign facing a major or minor arterial.

C. **Review.** In order to assure a quality design for each wall-painted sign, the wall-painted sign application shall be reviewed by the Site Plan Review Committee, or a sub-committee designated by the SPR Committee for this purpose, within three weeks of filing, at no fee to the applicant. The SPR Committee shall either approve the application, or direct the applicant to alter the plans in a way that would allow the Committee to approve the application.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.220 Roof signs.

Roof signs shall be permitted through the Creative Sign Permit process only. The area standards for projecting signs shall apply to roof signs. The building height limits established for the zoning districts shall not apply to roof signs.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.230 Changeable copy signs.

Changeable copy signs shall be allowed subject to the following:

A. **Users limited.** Changeable copy signs are limited to the following users: churches, florists, public schools, public colleges and universities, movie theaters, and gasoline price signs for gas stations. Exceptions to this rule shall require a Standards Variance as described in Division III of Chapter 21.25—Specific Procedures.

B. **Size.** Changeable copy displays may be installed on freestanding, monument, and wall signs. The area of the changeable copy display shall be counted toward the allowable sign area for the type of sign upon which the changeable copy is installed.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.240 Residential neighborhood and commercial district identification signs.

The City recognizes the desire for unique communities within its boundaries, both residential and commercial, to positively identify themselves and their geographic boundaries. To this end, the following guidelines are established to control the design, content, and location of such identification signs on both private and public property. In addition to these standards, the provisions of Subsection 21.44.900.A.6 (Signs on public property) also shall apply to any such sign located on public property. Street-name-style Neighborhood Marker Signs mounted on street lights or traffic signal poles are not regulated by this chapter, and are administered by the Department of Public Works.

A. **Type of Sign.** Limited to monument signs for residential neighborhood identification. Monument or freestanding signs are allowed for commercial district identification.

B. **Number of Signs.** Each residential neighborhood or commercial district shall display no more than one (1) sign on each side, or corner, or boundary of the neighborhood or district. In cases of irregularly-shaped or unclear boundaries, the Zoning Administrator shall be authorized to determine if a given proposal conforms to this regulation.

C. **Maximum Height, Width, and Area.** The maximum height, width, and area allowed for residential neighborhood and commercial district identification signs shall be as provided in Table 44-3.

Table 44-3
Height, Width, and Area Development Standards for Residential Neighborhood and Commercial District Identification Signs

Type of sign	Maximum Height (ft.)	Maximum Width (ft.)	Maximum Area (sq. ft.)
Monument	4	9	36
Freestanding	15	4	32

D. **Thickness.** Minimum of three inches (3") to a maximum of one foot (1').

E. **Materials.** Wood, stone, concrete, stucco, or metal or a combination of these materials.

F. **Lettering.** Individual letters carved from display or bolted onto display. Fragile or glued-on lettering is prohibited.

G. **Lighting.** Exterior light sources or internal illumination are allowed. External lights shall be aimed and shielded to prevent any light trespass into the adjacent roadway or adjacent properties.

H. **Prohibited.** Cabinet signs are prohibited as residential neighborhood and commercial district identification signs, as well as any plastic or fabric panels or fascia.

I. **Identification.** Each sign must indicate that the respective neighborhood or commercial district is part of the City of Long Beach, using the name "City of Long Beach" in at least three-inch (3")-tall letters. The purpose of this regulation is to avoid giving the impression that an area is a separate city or otherwise not a member of the City as a whole.

J. **Site Plan Review required.** Prior to the issuance of a sign permit (and prior to issuance of a right-of-way permit by the Department of Public Works in the case of a sign located on public property), an identification sign for a residential neighborhood or commercial district shall be subject to review by the Site Plan Review Committee. A fee equivalent to the fee for a Creative Sign Permit, as specified in a fee resolution to be adopted by the City Council, shall be required.

K. **Waiver of standards.** The Site Plan Review Committee may, at its discretion, waive the following development standards: type of sign, number of signs, height, length, thickness, materials, and lettering. The Site Plan Review Committee shall approve such waivers only if the findings required for a Creative Sign Permit are made, and the waiver will achieve the specified purpose of a Creative Sign Permit. However, prohibited sign types and materials shall not be approved through a waiver.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.250 Historic signs.

Any sign designated by City ordinance as a Historic Landmark, or granted historic designation by the California State Historic Preservation Office, or the United States Secretary of the Interior, or any sign that is a historic element of such a designated building or site, shall be considered a historic sign. Historic signs shall be exempt from the requirements of this chapter as to height, illumination, location, movement, sign area, and materials, and may be maintained as legally conforming signs subject to the following conditions:

A. All parts of the exempted historic sign including neon tubes, incandescent lights and shields, and sign faces shall be maintained in a functioning condition as historically intended for the sign to the greatest degree possible.

B. Parts of historic signs originally designed to flash or move may be allowed to continue to flash or move. There shall be no alterations to the historic pattern, speed, or direction of flashing or moving elements.

C. The wording or image of a historic sign may be altered only if the alterations do not substantially change the historic dimensions, height, scale, style, character, or type of materials of the historic sign.

D. Failure to maintain a historic sign as required above shall be grounds for disallowing an exemption from the requirements of this chapter. The Cultural Heritage Commission shall be authorized to make a determination of revocation of exemption. The sign shall thereafter be brought into compliance with the requirements of this chapter to the satisfaction of the Director of Development Services.

E. Full reconstruction or major alteration of a historic sign shall require approval of the Site Plan Review Committee, and the Cultural Heritage Commission in the case of a City-designated Historic Landmark.

(ORD-13-0014, § 19(Att. A), 2013)

DIVISION III.

MINOR SIGNS

21.44.300 Development standards—Minor signs.

Menu boards, on-site directional signs, and traffic directional signs shall be considered minor signs subject to the development standards outlined in this Division.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.310 Menu boards.

Menu boards are permitted for drive-through fast-food restaurants subject to the following restrictions:

A. **Number.** In addition to other permitted signs, two (2) freestanding menu boards and one (1) wall sign are permitted for each automobile service window.

B. **Area.** Menu boards shall not contain more than forty (40) square feet in area.

C. **Height.** Menu boards shall not exceed seven feet (7') in height above grade.

D. **Copy.** Menu boards shall contain only the business name, and information related to the food items and prices. The maximum letter size shall be three inches (3").

E. **Orientation and location.** Each sign shall be oriented to customers on the site, and not toward the adjacent right-of-way. The purpose of these signs is to provide information to customers already on-site, and not passers-by. Signs shall not be located within the required corner cutoff areas at driveway or drive-through entrances/exits.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.320 On-site directional signs.

On-site directional signs are permitted at business and institutional sites, for the purpose of directing persons to destinations within the site, subject to the following restrictions. They are intended primarily for land uses with larger parking lots, and/or drive-through lanes.

A. **Number.** In addition to other permitted signs, a business or site may display up to four (4) on-site directional signs by right. If a business or site wishes to display five (5) or more on-site directional signs, a Sign Program shall be required.

B. **Area.** On-site directional signs shall not be more than sixteen (16) square feet in area.

C. **Height.** On-site directional signs shall not exceed four feet (4') in height above grade.

D. **Copy.** On-site directional signs shall contain only words such as "Drive-through" (or "Drive-thru"), "Enter," "Exit," "This Way," and "Do Not Enter," as well as the business name and/or logo. The maximum letter size shall be three inches (3").

E. **Orientation.** On-site directional signs shall be oriented toward on-site traffic, and not toward the adjacent right-of-way. The purpose of these signs is to provide direction to traffic already on site, and not to traffic on the adjacent right-of-way. Signs shall not be located within the required corner cutoff areas at driveway or drive-through entrances/exits.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.330 Traffic directional signs.

Traffic directional signs, either wall or freestanding, may be displayed as necessary for all land uses to ensure the safe and orderly flow of automobile traffic on private property.

A. **Copy.** Traffic directional signs are limited to noncommercial messages for the purposes of directing safe flow of automobile traffic. A traffic directional sign shall not provide directions to a particular business, location, or event. Traffic directional signs shall be limited to stop signs, one-way signs, do not enter signs, speed limit signs, left/right turn only signs, no left/right turn signs, and other traffic signs of like purpose.

B. **Area and Size.** Each sign shall have a maximum area of six (6) square feet, and a maximum height of seven feet (7'), unless waived by the Zoning Administrator upon the recommendation of the City Traffic Engineer.

C. **Interference with Official Traffic Control Devices.** No traffic directional sign shall interfere with any official public traffic control device. Any traffic directional sign that is found to do so shall be removed or remedied by the property owner upon order by the City Traffic Engineer.

D. **Conformance with Traffic Control Device Standards.** All traffic directional signs shall be in conformance with the national, state, and local standards for traffic control devices in effect in the City of Long Beach to the satisfaction of the City Traffic Engineer.

(ORD-13-0014, § 19(Att. A), 2013)

DIVISION IV.

TEMPORARY SIGNS

21.44.400 Temporary signs.

Certain classes of signs may be erected as temporary signs subject to the following regulations.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.410 Promotional activity signs (banners).

Promotional activity signs, as defined in Section 21.15.2720 of this title, are permitted, subject to the following:

A. **Area.** A promotional activity sign (banner) shall not exceed one (1) square foot of banner area for each linear foot of building street frontage and shall not exceed one hundred (100) square feet, whichever is less.

B. **Number.** Only one (1) promotional activity sign shall be allowed per street frontage, or per business in the case of a commercial building with multiple business tenants.

C. **Aspect ratio.** A promotional activity sign shall not have an aspect ratio exceeding 3.0 (three (3) units length per one (1) unit height).

D. **Location.** Promotional activity signs shall be placed on a building wall only. It shall be prohibited to place a promotional activity sign on a fence, supported from poles or trees, between buildings or walls, upon an existing sign cabinet or structure (whether in use or not), on a building roof or extending above the parapet wall, or upon another structure. Promotional activity signs shall not be placed overhanging or obscuring windows.

E. **Time Limit.** The following time limits shall apply to promotional activity signs:

1. A promotional activity sign permit shall be valid for only ninety (90) days and shall not be renewable in the same calendar year.

2. The allowed time period shall be measured in calendar days. The ninety (90) day period may be broken into two (2) forty-five (45) day periods or three (3) thirty (30) day periods, provided that the sign is removed at the end of each period.

3. If the ninety (90) days includes December 31 and January 1, the permit shall be prorated or adjusted accordingly, such that permits are not issued for a site for more than ninety (90) days in a given calendar year, including prior promotional activity sign permits having a portion of the ninety (90) days period in the same year.

F. **Legalization of promotional activity signs (banners) without permits.** Any promotional activity sign placed without a valid permit shall be subject to the following:

1. If a permit is to be issued, the applicant shall pay double fees;

2. The duration (in days) that the sign was in place without a permit shall be subtracted from the ninety (90) days allowed for a promotional activity sign if it is to be legalized through a permit;

3. If the sign was in place for ninety (90) days or more without a permit, the sign shall be removed and no permit shall be issued for the subject location in that calendar year; and

4. If the duration that the sign was in place without a permit is not known or is not divulged by the applicant, the sign shall be assumed to have been in place for ninety (90) days, and the sign shall be removed, and no promotional activity sign permit shall be issued for the subject location in that calendar year.

G. **Exceptions.**

1. **Real estate signs and banners.** Real estate signs and banners are considered "permit exempt" signs and are subject to the restrictions specified in Table 44-4.

2. **Grand opening signs.** One (1) promotional activity sign for a grand opening event shall be allowed for a period of ninety (90) days in a calendar year, in addition to one (1) other promotional activity sign in the same calendar year.

3. **Automobile sales businesses/dealerships.** Vehicle sales businesses may be exempted from the limitations of this section on promotional activity signs through the Creative Sign Permit process; except that all pennants, streamers, and inflatable, air-blown, balloon-type and all other prohibited signs or decorations shall be prohibited regardless.

4. **Noncommercial promotional activity signs.** Noncommercial promotional activity signs are considered permit exempt signs and are subject to the restrictions specified in Table 44-4.

H. **Street Banners.** Street banners and banners hung across a public street are subject to approval by the City Manager as provided in Section 18.04.010 of the Municipal Code, and are not regulated by this chapter.

I. **Maintenance.** Promotional signs shall not be in a condition of disrepair. Disrepair shall include torn, faded, sagging, or dirty signs, and signs with a message that is outdated or no longer relevant. Signs in disrepair shall be removed, or may be restored or repaired if still within the permitted ninety (90) day period.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.420 Political signs.

Political campaign signs are not regulated as a separate class of signs.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.430 Subdivision signs.

Subdivision signs advertising the initial sale or lease of residential units within a single contiguous grouping comprised of fifteen (15) or more dwelling units, or fifteen (15) or more lots, are permitted, subject to the following regulations:

A. **Display Period.** A subdivision sign may be displayed during the period of construction and for a period not to exceed six (6) months from the date which eighty percent (80%) of the units have received certificate of occupancy, or until all of the units or lots have been sold or leased, whichever occurs first.

B. **Permitted Sign Types.** Only non-illuminated, freestanding signs are permitted.

C. **Number.** One (1) sign is allowed, plus one additional sign for each fifty (50) dwelling units or lots in the subdivision, or one (1) plus one (1) for each five (5) acres in the subdivision, whichever is less.

D. **Sign Area and Height.** The size of a subdivision sign shall not exceed two hundred (200) square feet, and the height shall not exceed fifteen feet (15'), measured from grade to the highest point of signs.

(ORD-13-0014, § 19(Att. A), 2013)

DIVISION V.

PERMIT EXEMPT SIGNS

21.44.500 Permit exempt signs.

The classes of signs set forth in this section are exempt from the application, permit and fee requirements for on-premises signs, provided the exempt sign conforms to Table 44-4—Exempt Signs. This section shall not exempt such signs from other provisions of the Municipal Code, including but not limited to those that may require building or electrical permits.

Table 44-4
Permit Exempt Signs

Class of Sign	Maximum Size	Maximum Number	Other Conditions
1. Building directory sign identifying building occupants	18 sq. ft.	1 per parking lot entry and building entry	-If changeable copy used, must be glass encased -Must be visible from sidewalk or parking lot
2. Interior signs	Area of sign must be less than 25% of total area of window through which it is exhibited	3 per window	-Must be located between 1 foot to 6 feet to the interior of any window from which sign is visible -Sign may not flash, rotate or exhibit any other prohibited characteristics
3. Public service and accessory signs identifying public conveniences (e.g., restrooms, telephones, hours of operation, vacancies)	Total area of all signs visible from any one street shall not exceed 10 sq. ft.	1 per service, accessory, or convenience per street frontage	None
4. Theater outer lobby posters advertising current or coming attractions	20 sq. ft. per poster	2 posters per movie screen, per street frontage	Must be glass encased
5. Window signs	Total of all signs displayed in any one window may not cover more than 10% of total window area	1 sign per 3 linear feet of window	-Each window shall be calculated separately -Must be placed in such a manner so as to not obstruct visibility into business
6. Any other non-prohibited sign, if less than 3 sq. ft.	Less than 3 sq. ft.	1 sign per 10 linear feet of building frontage facing street(s)	No sign shall be placed in the public right-of-way or on vacant property

Class of Sign	Maximum Size	Maximum Number	Other Conditions
7. Construction sign identifying firms involved in construction site, future tenants, or announcing development	Height—15 ft. Area—16 sq. ft.	1 per street abutting construction site	-Must be removed within 15 days of completion of construction -No illumination permitted
8. Flags	Length—9 ft. Width—6 ft.	3 flags	-Flag pole height shall be limited to the established building height for each respective zoning district. -Flag signs are prohibited, as defined in Section 21.15.2510 -Decorative flags are prohibited; see Section 21.44.600
9. Garage sale signs	Height—4 ft. Area—6 sq. ft.	1 per garage sale on same premises	No sign shall be placed on public property
10. Open house signs or flags/banners	Height—4 ft. Area—6 sq. ft.	1 per 300 feet of street frontage	-May be used on temporary basis only when house is open for inspection without an appointment -May not be placed on public property
11. Real estate signs (on-premises) advertising sale, rental or lease of property	Height—8 ft. Area— a) Nonresidential use—16 sq. ft. b) Residential use—6 sq. ft. for first dwelling unit plus 1 sq. ft. for each additional unit up to 16 sq. ft. maximum	1 per 300 feet of street frontage	-Types limited to non-illuminated wall, window, or free-standing signs -No signs may be placed on public property -Signs may be displayed only during the period the premises is held for sale, rental or lease, and for not more than 15 days thereafter -Signs must be maintained in good condition
12. Real estate banners	Height—same limitations as wall signs Area—16 sq. ft., or 6 sq. ft. plus 1 sq. ft. for each additional unit, whichever is less Aspect Ratio—maximum aspect ratio of 3.0 (3 units length to 1 unit height)	1 banner in addition to 1 other real estate sign per 300 feet of street frontage	-Banners must be placed on a building wall and may not be mounted on poles, fences, above the roof deck/roof line, etc. -Banners may be displayed only during the period the premises is held for sale, rental or lease, and for not more than 15 days thereafter -Banners must be maintained in good condition, with current information, and must be replaced when worn or dilapidated
13. Single-family residential sign identifying resident	Not to exceed 2 sq. ft.	1 per residence	None
14. Warning signs (e.g., "Danger," "No Dumping")	3 sq. ft. per warning	As necessary per warning	None
15. Street address signs	No maximum if sign contains address only	1 per address per street frontage	Minimum letter height of 4 inches
16. Signs painted on parking lot surface	½ width of drive aisle	As necessary	Must contain parking or directional information only and no commercial message

Class of Sign	Maximum Size	Maximum Number	Other Conditions
17. Noncommercial promotional activity signs	16 sq. ft per sign; not to exceed a maximum total area of 80 sq. ft. for all such signs on a lot or parcel whether such lot is zoned commercial, residential or industrial.	No limit on the number of signs provided the maximum area of 80 sq. ft. for each lot or parcel is not exceeded.	Signs shall not interfere with or be designed in such a manner that they will be confused with a traffic control signal or sign, or obstruct the vision of traffic. They shall not be placed on any public property or right of way or posted on any utility pole or device. Signs shall be removed from a premise no later than 5 days following the conclusion of the activity or event promoted by such sign
Abbreviations: sq. ft. = square feet ft. = feet			

(ORD-13-0014 § 19(Att. A), 2013)

DIVISION VI.

PROHIBITED SIGNS

21.44.600 Prohibited signs.

The following signs shall be prohibited:

A. **Unlawful Sign Projections.** No sign shall project into an adjoining private property under separate ownership, or into a public right-of-way or into an established setback unless an encroachment permit has been issued by the City Engineer.

B. **Flashing Signs.** No sign shall flash, shimmer or glitter, nor give the appearance of flashing, shimmering or glittering.

C. **Moving or Rotating Signs.** No sign shall rotate, oscillate or otherwise move, nor give the appearance of rotating, oscillating or moving.

D. **Sound, Odor, Particulate Matter.** No sign shall emit audible sound, odor or particulate matter.

E. **Unlawful Illumination.**

1. No sign illumination system shall contain or use any beacon, spot, or stroboscopic light, or reflector which is visible from any public right-of-way or adjacent property.

2. Generally, illuminated signs shall not be allowed to change color or light intensity. The exception being neon, fiber optic, or light-emitting diode (LED) light sources, which are permitted to gradually change color. Light intensity shall not be allowed to change.

3. No floodlight shall be used which is not hooded or shielded so that the light source is not visible from any public right-of-way, adjacent property, or residential dwelling unit.

F. **Portable Signs.** Portable signs are prohibited, except that a portable sign may be displayed to indicate a temporarily closed vehicular entrance or exit for purposes of public safety or convenience.

G. **Street Furniture.** Signs shall not be placed on street furniture, as defined in this title.

H. **Vehicle Signs.** Signs identifying a business shall not be affixed to or placed in or on vehicles parked in the public right-of-way or on private property in a manner such that the vehicle functions as a sign for the business. This regulation shall not apply to buses and taxicabs legally operating within the City limits, or to other permitted uses regulated under other titles of the Municipal Code. However, mobile billboards are prohibited in Chapter 21.54 (Billboards).

I. Obstruction of Use or Visibility. No sign shall be located so that any portion of the sign or its supports interferes with the free use of any fire escape or exit or obstructs any required fire standpipe, stairway, door, ventilator or window; nor shall any sign be located so as to obstruct the visibility (corner cutoff areas) of vehicles or pedestrians using driveways or doorways.

J. **Interference with Utility Lines.** No sign shall be located which has less horizontal or vertical clearance from utility lines than that prescribed by the rules of the Public Utilities Commission of the State.

K. **Interference with Official Traffic Control Devices.** No sign shall appear in color, wording, design, location or illumination to resemble or conflict with any traffic control device.

L. **Inflatable and Air-Blown Signs.** Any signs or decorations that are inflatable, such as balloons of any size or shape, and any signs that are air-blown or inflated or animated by the internal flow of air, such as signs that appear to have a waving body and appendages, are prohibited.

M. **Flag Signs.** Flag signs (as defined in Section 21.15.2510) are prohibited. This includes any type of flag that functions as a sign, whether affixed to a building or not, including but not limited to those mounted on curved or flexible swivel masts and commonly referred to as "sails," "feathers," or "bow banners."

N. **Decorative flags.** Flags with no intrinsic meaning (usually, but not limited to, simple flags of one or several colors, with or without a design motif), which are intended only to draw attention to a building or location, are prohibited. However, nothing in this Subsection shall be construed to prohibit any flag that constitutes a protected form of expression and is in compliance with all other applicable provisions of the Municipal Code.

O. **Streamers, pennants, balloons, and the like.** All types of signs and exterior decorations that can be considered steamers, pennants, balloons, and the like shall be prohibited.

P. **Projected light signs.** Any sign created by projecting light onto a surface is prohibited.

Q. Any sign not exempted or permitted by this chapter shall be prohibited.

(ORD-19-0028 § 27, 2019; ORD-13-0014 § 19(Att. A), 2013)

DIVISION VII.

NONCONFORMING, ABANDONED AND ILLEGAL SIGNS AND OTHER PROVISIONS

21.44.710 Nonconforming signs.

It is the intent of this section to recognize that the eventual elimination of existing on-premises signs that do not conform to this chapter is as important to City-wide aesthetic and health, safety and welfare

as is the prohibition of new signs that would violate the provisions of this chapter. It is also recognized that nonconforming signs should be eliminated as expeditiously and fairly as possible in a manner that avoids any unreasonable invasion of established property rights.

A. **Continuation of Use.** A nonconforming on-premises sign may be continued in operation and maintained after the effective date of the ordinance codified in this title, provided that nonconforming signs shall not be:

1. Changed to another nonconforming sign; or

2. Structurally altered so as to extend the useful life of the sign; or

3. Expanded; or

4. Reestablished after damage or destruction of more than fifty percent (50%) of the sign value at the time of such damage or destruction.

The copy on nonconforming signs may be changed without affecting their nonconforming status, provided the content of the new copy is consistent with the provisions of this code, and a building permit is not required to change the copy.

B. **Amortization.**

1. Permanent nonconforming signs shall be removed or brought into compliance with the provisions of this chapter under the following circumstances:

a. Whenever the business, building, or other establishment for which the sign was emplaced is vacated, or

b. Whenever there is a change in the business license for the owner or lessee of a property on which there is a nonconforming sign(s), the nonconforming sign(s) shall be removed or brought into compliance with the provisions of this chapter prior to the effective date of the new owner's or lessee's business license, or

c. Upon approval of a building or electrical permit to modify a nonconforming sign for the purpose of expanding the sign, or structurally altering it to extend its useful life, or to reestablish the sign after damage or destruction of more than fifty percent (50%) of the sign value at the time of damage or destruction, the nonconforming sign shall be brought into compliance with the provisions of this chapter.

2. Nonconforming wall-painted signs shall be painted out, or brought into compliance with the provisions of this chapter when there is a change in business ownership or lessee of the property.

3. Cabinet signs with translucent plastic faces shall be subject to the requirement to utilize a push-through-type of sign face, as specified in Subsection 21.44.120.F.3, upon replacement of the sign face or copy, or when the circumstances specified in Subsection 21.44.710.B.1 are met.

4. Historic signs shall be exempt from amortization, as provided in Section 21.44.250.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.720 Abandoned signs.

All abandoned signs, as "abandoned sign" is defined in Section 21.15.2520, shall be removed immediately.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.730 Illegal signs.

All illegal signs have no vested rights and shall be removed or made to conform to the provisions of this chapter immediately.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.740 Administrative removal of signs.

Signs may be removed by the City in accordance with the following procedures:

A. **Illegal or Dilapidated Signs.** If the Director of Development Services, or his or her designee, finds that a sign is in violation of this chapter, or is in disrepair, defaced, deteriorated (including peeling paint), prohibited, abandoned, illegal, or is in violation of the Building Code or any other laws and ordinances, he shall seek correction of the violations as provided for in the Municipal Code, including the Administrative Citation process. The Director of Development Services shall inform the sign owner by a written notice if the sign is to be removed.

B. **Safety Hazard or on Public Right-of-Way.** The City Engineer, or his designee, without giving notice, shall have the authority to authorize removal of any sign which:

1. Poses an immediate threat to public safety; or

2. Is displayed in violation of the provisions of this chapter or other City ordinances on or over any public right-of-way or public property.

(ORD-13-0014, § 19(Att. A), 2013)

DIVISION VIII.

ELECTRONIC MESSAGE CENTER SIGNS

21.44.800 Electronic message center signs.

Electronic message center signs (abbreviated EMCS) are permitted subject to the following standards. Any exception to these standards shall require application for a Standards Variance under the provisions of Chapter 21.25 (Specific Procedures).

(ORD-13-0014, § 19(Att. A), 2013)

21.44.810 Conditional Use Permit required.

The City recognizes that an electronic message center sign, if not carefully regulated and designed, has the potential to cause significant adverse effects upon its surrounding visual environment, and to negatively impact the perception of the environment and condition of its neighborhood. Therefore, to ensure that a process for adequate review is provided for these signs, each EMCS shall require an application for a Conditional Use Permit under the provisions of Chapter 21.25 (Specific Procedures), and additionally shall be subject to the findings specified in Section 21.52.229 - Electronic Message Center Signs (Conditional Uses). Additionally, to ensure a high-quality design, prior to a public hearing on the Conditional Use Permit the Site Plan Review Committee shall be authorized to review the design of the proposed EMCS under the provisions of Chapter 21.25 (Specific Procedures).

(ORD-13-0014, § 19(Att. A), 2013)

21.44.820 Site requirements for electronic message center signs.

Electronic message center signs are subject to the following site restrictions:

A. **Lot or Building Minimum Size.** Electronic message center signs are allowed only at a business or shopping center or institutional use that is located upon five (5) or more acres of land. The five (5) or more acres must consist of one (1) contiguous group of parcels or lots, and must be held by one (1) owner. Alternately, an EMCS may be permitted for a single building consisting of one hundred fifty thousand (150,000) square feet or more in gross floor area. Such building must be located on one contiguous parcel or group of lots and be held by one (1) owner.

B. **Same Site as Principal Use.** An electronic message center sign shall be located on the same parcel as the principal land use of the business or institution for which the sign is established. The sign shall not be located on a site containing only a land use or uses secondary to the primary operation of the business or institution. For example, an electronic message center sign shall not be located on a lot or parcel used for automobile storage by an automobile dealership whose primary sales operations are on a different site; nor shall an electronic message center sign be located on a lot or parcel used for parking for an institution if said institution is on a different parcel.

C. **Zones permitted.** EMCS shall be allowed in certain zoning districts as provided in Table 44-5.

D. **Street types permitted.** EMCS shall be allowed only on a street or highway classified as a Major Arterial, Regional Corridor, or Freeway.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.830 Number, location, spacing, form, and substitution/removal requirements.

The following requirements shall apply regarding the number, spacing, and form of electronic message center signs, as well as substitution for other sign types and removal of other sign types:

A. **Number.** One (1) EMCS shall be allowed for each six hundred feet (600') of total street frontage on a qualifying site (the total may include street frontage more than one (1) street for sites bounded by multiple streets).

B. **Location.**

1. **Upon subject site.** No electronic message center sign shall be located closer to any interior side property line than twenty-five feet (25'). Lots adjoining freeway or railroad right-of-way may locate an EMCS on the property line adjoining such right-of-way.

2. **Distance from residential.** All EMCS shall have a minimum separation of one hundred feet (100') from a residential district.

C. **Spacing.**

1. **Between EMCS on same frontage.** A radius of three hundred feet (300') shall be required between each EMCS on the same property, on the same street frontage.

2. **Between EMCS on different frontage.** No EMCS shall be located less than one hundred feet (100') from another EMCS on a different street frontage (for example, an EMCS on each frontage of a corner lot) on the same property or site.

3. **Between EMCS and freestanding/monument signs.** The minimum distance required between a freestanding/monument sign and an electronic message center sign shall be one hundred feet (100').

4. **Between EMCS on different properties.** No EMCS shall be located less than three hundred feet (300') from another EMCS on a different property or site.

5. **Freeway-oriented EMCS.** A radius of six hundred sixty feet (660') shall be required between all freeway-oriented electronic message center signs. For freeway-oriented EMCS, and EMCS located adjacent to other State highways, if the requirements of the California Department of Transportation (Caltrans) are more restrictive, those requirements shall control.

D. **Sign form.** An EMCS may take the form or style of a freestanding sign, monument sign, or wall sign only. Other forms are prohibited.

E. **Substitution for freestanding/monument signs and other sign removal.** For each EMCS to be emplaced, two (2) freestanding or monument signs, if extant, shall be removed from the subject site, on the same street frontage as the EMCS. Additional removal of other on-premises sign(s) may be required by the Planning Commission as a condition of approval.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.835 Design standards.

The following design standards shall apply to electronic message center signs:

A. Bare metal structural supports are prohibited, and shall have an architectural covering instead.

B. A freestanding EMCS shall have an architectural base and support(s) totaling at least half the width of the sign face.

C. Use of flat, translucent plastic or acrylic sign faces for the fixed/permanent copy shall be prohibited. Channel letters are preferred, and push-through-type faces may be used on cabinets.

D. High-quality materials shall be used in the sign overall. Use of metal backgrounds and cabinets is strongly encouraged.

E. The overall design, form, and structure of the EMCS shall be architecturally interesting and creative, and shall be harmonious with itself and the surrounding land uses. The design should complement the building(s) of the site for which it is emplaced, and, where appropriate, bear a strong architectural relationship to those buildings.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.840 Height, area, projection, and clearance requirements.

A. **Height and area.** The height and area of an EMCS shall not exceed the limits set forth in Table 44-5.

B. **Projection and clearance.**

1. No portion of an electronic message center sign shall project into any right-of-way.

2. The vertical clearance from grade to the lowest point of the sign is eight feet (8') for pedestrian use and fifteen feet (15') for vehicular use.

Table 44-5
Zoning, Height, and Area Standards for Electronic Message Center Signs

<table>
<tr><th colspan="2" rowspan="2">Zoning Districts</th><th colspan="3">Standards</th></tr>
<tr><th>Permitted area (sq. ft.)</th><th>Maximum area (sq. ft.)</th><th>Maximum height (ft.)</th></tr>
<tr><td>CCA</td><td>C</td><td rowspan="3">Freestanding: 2/L.F. [a]
Monument: 1/L.F.
Wall: 1/L.F.</td><td>Freestanding: 150
Monument: 100
Wall: 150</td><td rowspan="3">Freestanding: 25 [c]
Monument: 8
Wall: building height</td></tr>
<tr><td>CHW
IL, IM, IG, IP
I, P, PR</td><td>C</td><td rowspan="2">Freestanding: 150[b]
Monument: 100
Wall: 250</td></tr>
<tr><td>Commercial and industrial character PDs[d]</td><td>C</td></tr>
<tr><td>Residential and mixed-use character PDs[d]</td><td>N</td><td>n/a</td><td>n/a</td><td>n/a</td></tr>
<tr><td>All R zones
CNP, CNA, CNR
CCP, CCR, CCN</td><td>N</td><td>n/a</td><td>n/a</td><td>n/a</td></tr>
<tr><td colspan="5">Abbreviations: C = Conditional use permit required, N = Not permitted, PD = Planned Development District, ft. = feet, sq. ft. = square feet, L.F. = linear feet of street frontage (or building frontage for wall-type EMCS), n/a = not applicable.</td></tr>
</table>

Zoning Districts	Standards		
	Permitted area (sq. ft.)	Maximum area (sq. ft.)	Maximum height (ft.)
(a) For freeway-oriented EMCS, permitted area is 3 sq. ft./L.F.			
(b) For freeway-oriented EMCS in the noted zoning districts only, maximum area is 300 sq. ft.			
(c) For freeway-oriented EMCS, maximum height is 40 ft. Where the freeway elevation is higher than the base of the sign structure, height shall be measured from the grade of the freeway lane nearest the sign (not including on- and off-ramps) to the top of the sign structure, as illustrated in Figure 44-9.			
(d) In all PDs, sign regulations specified within each PD ordinance take precedence over the provisions of this chapter. In cases of doubt, or where the several subareas of a given PD are of differing character, the Zoning Administrator shall determine which standards should apply.			

(ORD-13-0014, § 19(Att. A), 2013)

21.44.850 Brightness, display, copy, and message requirements.

The following requirements establish the standards for the display face and copy and messages to be displayed on an electronic message center sign:

A. **Brightness.** The following brightness standards and limitations shall apply:

1. Dawn to dusk: unlimited;

2. Dusk to dawn: the display surface shall not produce luminance in excess of 0.3 foot-candles above ambient light conditions, or the level recommended by the Illuminating Engineering Society of North America (IESNA) for the specific size and location of the sign, whichever is less;

3. The display brightness shall be controlled by a photocell or light sensor that adjusts the brightness to the required dusk-to-dawn level based on ambient light conditions without the need for human input. Use of other brightness adjustment methods, such as timer- or calendar-based systems, shall only be used as a backup system;

4. The display shall be factory-certified as capable of complying with the above brightness standards. Such certification shall be provided to the satisfaction of the Director of Development Services; and

5. The sign owner shall provide to the City, upon request, certification by an independent contractor that the brightness levels of the sign are in compliance with the requirements of this section.

B. **Display message.** The following standards and limitations shall apply to the message shown on the display surface:

1. The message shown on the EMCS display shall not flash, shimmer, glitter, or give the appearance of flashing, shimmering, or glittering.

2. The EMCS display shall have no message or illumination which moves, or is in continuous motion, or which appears to be in continuous motion. Display of full-motion video and video-like sequences is prohibited.

3. The display message shall not change at a rate faster than one (1) message every eight (8) seconds.

4. There shall be a direct change from each message to the next, with no transition effect, and no blank or dark interval in between, to avoid a flashing or blinking effect.

5. The intensity of illumination shall not change, except as required to comply with the dusk-to-dawn brightness standards.

6. All messages shall be limited to on-site advertising of goods or services, or noncommercial messages (i.e., time, temperature, or public service announcements). All off-site advertising messages are prohibited (see "Billboard" Section 21.15.370); this includes messages by or for sponsors, patrons, brands, and other similar off-site parties or entities.

C. **Fixed Copy.** Fixed/permanent sign copy on each face of an electronic message center sign shall be limited to the identification of the business, shopping or convention center name or icon and two (2) major tenants or products or services. The fixed/permanent sign copy shall not flash, shimmer, glitter, or give the appearance of flashing, shimmering, or glittering, and shall be included in the overall sign area as indicated on Table 44-5.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.855 Light and glare intrusion prevention.

All electronic message center signs shall be adequately shielded and properly oriented and aimed so as to prevent the intrusion of light and glare upon residential land uses, including those in mixed-use districts.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.860 Exemptions.

A. Electronic signs used solely to display prices for gasoline sales at gas stations shall not be required to obtain a conditional use permit. These signs shall be subject to all other applicable requirements of Chapter 21.44.

B. Electronic message center signs and other similar electronic displays that are not visible from the public right-of-way and any other public or private property shall be exempt from the requirements of this division, except that such a sign or display shall be adequately covered or shielded, and properly oriented and aimed, so as to prevent the emission or generation of light and glare above the sign location. All building and electrical permits shall be obtained as required by the Municipal Code.

(ORD-13-0014, § 19(Att. A), 2013)

21.44.870 Nonconforming electronic message center signs.

It is the intent of this section to recognize that the eventual elimination of existing electronic message center signs that do not conform to this chapter is as important to City-wide aesthetic and health, safety

and welfare as is the prohibition of new signs that would violate the provisions of this chapter. It is also recognized that electronic message center signs typically require a much higher initial investment than other classes of signs, and do not recycle with the frequency of other classes of signs. Consequently, separate regulations for nonconforming EMCS are necessary to ensure that legal nonconforming EMCS are addressed as fairly as possible in a manner that avoids any unreasonable invasion of established property rights. Therefore, existing, legally-established electronic message center signs may be used and maintained as legal nonconforming signs, notwithstanding the provisions of Section 21.44.710 (Nonconforming signs), subject to the following restrictions:

A. A nonconforming EMCS shall not be:

1. Enlarged or otherwise altered to increase its display area,

2. Increased in height,

3. Changed to another type of nonconforming sign,

4. Structurally altered to extend its useful life,

5. Converted to a billboard (electronic/digital or otherwise), or

6. Reestablished after damage or destruction of more than fifty percent (50%) of the value of the sign at the time of such damage or destruction.

B. The display surface and fixed sign copy of a nonconforming EMCS may be altered and upgraded without affecting the nonconforming status of the sign, provided that such alterations comply with the requirements of Section 21.44.850 regarding brightness, display, copy, and message.

C. Upon change of the primary land use for which the EMCS was constructed, the new owner or operator shall be required to obtain a new Conditional Use Permit in order to maintain the EMCS at the site. The Planning Commission may, at its discretion, require upgrades to the display surface, fixed copy, and other elements of the nonconforming EMCS to bring it into compliance with the requirements of Section 21.44.850. If a new Conditional Use Permit is not obtained, the EMCS shall be removed immediately.

(ORD-13-0014, § 19(Att. A), 2013)

DIVISION IX.

SIGNS ON PUBLIC PROPERTY

21.44.900 Signs on public property.

A. **Applicability.** No person, except a public officer or employee performing a public duty, shall place any sign on, above, along or within any public property. This prohibition does not apply to:

1. Temporary promotional activity signs in public parks in connection with activities or uses approved by the City;

2. Street banners, temporary holiday season decorations, and other street decorations on or suspended from lamp poles or other public structures shall be permitted when approved by the Director of Public Works and the City Manager;

3. Signs authorized by the City inside publicly owned places of assemblage such as convention halls, auditoriums, sports arenas or stadiums which are used in a proprietary capacity;

4. Wall signs for on-premises advertising on buildings used by concessionaires or other private commercial users or lessees of public property, when authorized by departments or agencies of the City in their proprietary capacity, and provided that any such signs comply with the provisions of Section 21.44.120 pertaining to wall signs;

5. Painting of house numbers upon curbs in compliance with the requirements of this Code;

6. Residential neighborhood and commercial district identification signs (see Section 21.44.240) provided:

   a. The signs are located in parkways or in the median island of divided highways;

   b. The signs shall comply with the established design guidelines in this chapter; and

   c. The applicant has a written construction and maintenance agreement approved by the Director of Public Works.

7. Advertising, advertising displays or donor recognition permitted pursuant to Chapter 16.55.

B. **Permit Required.** Any person who intends to place a private sign on public property as permitted by Subsection 21.44.900.A shall first obtain a permit from either the Director of Public Works or in the case of public property used in a proprietary capacity, from the department or agency of the City in charge of such property. A permit application form shall be provided by the City. The City Council, by resolution, may establish permit fees and may authorize rental rates or other appropriate charges for this permitted use of public property.

C. **In the Coastal Zone:**

1. On the sandy beach, the placement of private freestanding signs is prohibited.

2. Prior to the placement of any private sign on public property located adjacent to the sandy beach, a coastal development permit shall be approved for a comprehensive sign plan. A comprehensive sign plan shall include specific standards for the size, number and location of proposed signs. A coastal development permit for a comprehensive sign plan shall be approved only if a positive finding is made that the sign or signs included in the plan do not:

   a. Obstruct public views to or along the coast;

   b. Adversely impact public access to and use of the water;

   c. Adversely impact public recreational use of a public park or beach; or

d. Otherwise adversely affect recreation, access or the visual resources of the coast.

3. A coastal development permit shall be required for any sign placed on public property in the Coastal Zone, except that a coastal development permit shall not be required for: wall signs; signs on the interior of structures; signs comprised solely of paint on existing structures; temporary banners, and flags displayed for a period not to exceed ninety (90) days; warning signs; traffic safety signs; and public service signs less than four (4) square feet that identify public conveniences (e.g., restrooms, telephones, hours of operation, government ordinances). A coastal development permit for a sign on public property shall be approved only if a positive finding is made that the sign design and scale does not:

a. Obstruct views to or along the coast from publicly accessible places;

b. Adversely impact public access to and use of the water;

c. Adversely impact public recreational use of a public park or beach; or

d. Otherwise adversely affect recreation, access or the visual resources of the coast.

D. **Removal of Signs.** Any sign permitted on public property shall be removed by the party responsible for its posting immediately after the conclusion of the advertised event or by the removal date established by ordinance, regulation, contract or event. If such sign is not removed by that time, it shall be deemed abandoned and may be summarily removed by the City. The person or entity responsible for posting said sign shall be liable for the City's costs incurred in the removal of such sign, and the City Manager or his/her designee is authorized to collect said costs.

E. **Illegal Signs.** Any sign placed on public property in violation of the provisions of this section is declared a public nuisance and may be summarily removed by the City. The person or entity responsible for such illegal posting shall be liable for the City's costs incurred in the removal of such sign, and the City Manager or his/her designee is authorized to collect said costs.

(ORD-13-0014, § 19(Att. A), 2013)

CHAPTER 21.45 SPECIAL DEVELOPMENT STANDARDS

21.45.010 Purpose.

The City recognizes that certain types of land use, due to the nature of the use, require additional development standards beyond those specified for the applicable zone district. The additional standards are required to ensure that the use does not adversely impact adjacent uses. This Chapter establishes special development standards for permitted principal uses indicated in Tables 31-1, 32-1, 33-2, 34-1, 35-1 and 36-1 with a "Y" and an asterisk (Y*).

(Ord. C-7629 § 2, 1999; Ord. C-6533 § 1 (part), 1988)

21.45.100 Special development standards.

Special development standards shall be required for the use and activities noted as set forth in Section 21.45.110 et seq.

(Ord. C-7378 § 19, 1995; Ord. C-6533 § 1 (part), 1988)

21.45.110 Adult entertainment businesses.

The following special development standards shall apply to adult entertainment businesses, as defined in Chapter 21.15 (Definitions) of this Title:

A. **Location.**

1. Adult entertainment businesses may not be located:

   a. Within three hundred feet (300') of any residential zoning district or residential Planned Development District (specifically excluding mixed-use zones) within the City; or

   b. Within one thousand feet (1,000′) of any public or private school (kindergarten through twelfth grade) located within the City; or

   c. Within six hundred feet (600′) of a City park; or

   d. Within five hundred feet (500′) of a church, as defined in Section 21.15.510 herein; or

   e. Within one thousand feet (1,000′) of any other adult entertainment business, as defined in this Title; or

   f. Fronting upon that portion of Pacific Coast Highway between Hayes Avenue and Termino Avenue, that portion of Anaheim Street between the Long Beach Freeway and Termino Avenue, that portion of Santa Fe Avenue between Anaheim Street and Pacific Coast Highway and that portion of Artesia Boulevard between Paramount Boulevard and Downey Avenue, and that portion of Broadway between Atlantic Avenue and Euclid Avenue. Such areas have been determined by the Long Beach Police Department to experience a high rate of arrests for prostitution, lewd behavior and disorderly conduct. Such determination shall be reviewed in three (3) year intervals, commencing upon October 1, 1997.

2. All measurements set forth above shall be made in a straight line, without regard to intervening structures or objects, from the nearest point on the property line of the adult entertainment business to the nearest point on the property line of the residential zone, school or other adult entertainment business, as applicable.

B. **Parking.** Adult entertainment businesses shall comply with the parking requirements set forth in Chapter 21.41 (Off-Street Parking and Loading Requirements). The number of parking spaces provided shall be the equivalent of that required for new construction, regardless of the status of the legal nonconforming parking rights of the previous use.

C. **Security.** The adult entertainment business shall provide a security system that visually records and monitors all parking lot areas serving the use. All indoor areas of the adult entertainment business shall be open to public view at all times with exception of restroom facilities. "Accessible to the public" shall include those areas which are only accessible to members of the public who pay a fee and/or join a private club or organization. Further, the adult entertainment business shall provide security guards, who are State licensed, armed, uniformed and approved by the City of Long Beach Police Department, during all hours of operation. The number of such guards so required shall be determined by the Chief of Police, and such number may be increased at any time by the Chief of Police if it is determined, in the Chiefs discretion, that such increase is necessary to protect the public peace and the surrounding neighborhood.

D. **Displays.** The adult entertainment business shall not display any adult oriented material or adult oriented merchandise which would be visible from any location other than from within the premises of the adult entertainment business. This limitation includes newsracks, except as permitted by Long Beach Municipal Code Chapter 14.20 (Newsracks).

E. **Lighting.** All areas of the adult entertainment business (except movie and mini-movie theaters) shall be illuminated at a minimum of one (1) foot-candle, minimum maintained and evenly distributed at ground level (excluding those areas shielded by tables and similar obstructions). Parking lot lighting shall comply with the standards set forth in Section 21.41.259 of this Title.

F. **Hours of Operation.** An adult entertainment business shall not operate between the hours of twelve (12:00) midnight and nine (9:00) a.m.

(Ord. C-7274 § 4, 1994: C-6684 § 37, 1990; Ord. C-6533 § 1 (part), 1988)

21.45.114 Alcohol beverage manufacturing and accessory tasting rooms.

The following special development standards shall apply to Alcohol Beverage Manufacturing (ABM) uses and Accessory Tasting Rooms:

1. An ABM and accessory tasting room use shall comply with all federal, state and local laws and regulations, including a valid license from the California Alcohol Beverage Control (ABC) Board for the specific type of alcoholic beverage manufacturing occurring on site.

2. An ABM and accessory tasting room use located in a commercial zone shall not exceed six thousand (6,000) square feet of gross floor area (GFA), unless otherwise permitted by an Administrative Use Permit (AUP).

3. An ABM use located in a commercial zone may not exceed production of fifteen thousand (15,000) barrels per year.

4. An ABM use located in a commercial zone must include an accessory tasting room.

5. An ABM and accessory tasting room may not be located within five hundred (500) feet of the nearest property line of any elementary, secondary, or high school, as measured from the nearest

property line of the site on which the alcohol manufacturing use is located, unless located in PD-30 (Downtown Plan), or permitted by Conditional Use Permit (CUP) in accordance with Section 21.52.201.

6. All production activities shall be located completely within the ABM facility. All on-site storage shall be located within the ABM facility. Off-site storage is permitted in those zoning districts where storage and warehousing is permitted.

7. The display of alcoholic beverages shall not be located outside of an ABM and accessory tasting room facility.

8. The ABM and accessory tasting room use shall not be open to the public, except for the following hours:

   Manufacturing and Production: 7:00 a.m. - 7:00 p.m. Monday - Saturday.

   Accessory Tasting Room (Industrial Zone): 12:00 p.m. - 9:00 p.m. Sunday - Thursday, and 11:00 a.m. - 10:00 p.m. Friday - Saturday.

   Accessory Tasting Room (Commercial Zone): 12:00 p.m. - 9:00 p.m. Sunday - Thursday, and 11:00 a.m. - 11:00 p.m. Friday-Saturday. Additional hours may be permitted through an Administrative Use Permit (AUP). The City Clerk shall certify to the passage of this ordinance by the City Council and cause it to be posted in three (3) conspicuous places in the City of Long Beach, and it shall take effect on the thirty-first (31st) day after it is approved by the Mayor.

9. Service trucks used for the purposes of loading and unloading materials, ingredients, products, and equipment shall be restricted to the hours of 8:00 a.m. - 6:00 p.m. Monday - Friday and 11:00 a.m. - 6:00 p.m. on Saturday; the use of service trucks for the purposes of loading and unloading materials, ingredients, equipment and finished product shall be prohibited on Sunday.

10. To the greatest extent feasible, access and loading bays are discouraged from facing toward a street.

11. The purchase, consumption, tasting and sales of alcoholic beverages shall be limited to only those products produced on site.

12. Ancillary retail sales shall be limited to only those retail items directly associated with the on-site ABM facility and accessory tasting room.

13. The ABM use or accessory tasting room shall not charge an admission fee, cover charge or require a minimum purchase.

14. A sewage plan and all on site infrastructure shall be approved by the appropriate City departments.

15. The ABM and accessory tasting room use shall comply with Chapter 8.80 "Noise" of the Long Beach Municipal Code.

16. A security plan, including a video surveillance system and exterior lighting plan, satisfactory to the Chief of Police shall be submitted to and approved by the Police Department prior to the issuing of a Certificate of Occupancy. The video surveillance system shall be installed to assist with monitoring the property on both the interior and exterior. A Digital Video Recorder (DVR), capable of exporting images in TIFF, BMP, or JPG format shall be used. Recording shall be retained for no less than thirty (30) days. Exterior lighting shall clearly illuminate the common areas surrounding the building including, but not limited to, the entrance and exit doors, as well as the business address.

17. No more than ten percent (10%) of the square footage of the windows and transparent doors of the premises shall be allowed to bear advertising, signs or any other obstructions. All advertising, signage or other obstructions shall be placed and maintained to ensure a clear and unobstructed view of the establishment's interior. Window signs displaying prices shall be prohibited. No advertising or signage shall be placed in the area above three (3) feet or below six (6) feet in height of all windows measured from grade.

18. No publicly accessible exterior pay telephones shall be located on the ABM and accessory tasting room use premises.

19. Tours of the ABM and accessory tasting room use shall occur on regularly scheduled days and times. The operator shall ensure that tours do not negatively impact adjacent businesses or property owners.

20. ABM and accessory tasting room uses located adjacent to or across from residential areas shall be restricted from utilizing natural ventilation practices that may negatively impact neighboring residences and may be required to install mechanical air filtration systems to the satisfaction of the Director of Development Services.

(ORD-16-0025 § 2, 2016; ORD-15-0010 § 6, 2015)

21.45.115 Reserved.

Editor's note—ORD-11-0011 § 9, adopted June 7, 2011, repealed § 21.45.115, entitled "Attached/roof mounted cellular and personal communication services", which derived from: Ord. C-7399 § 15, 1996.

21.45.115.5 Amusement/entertainment facilities.

The following special development standards shall apply to Amusement/entertainment facilities:

A. Hours of operation shall be limited to between eight (8:00) a.m. to twelve o'clock (12:00) midnight;

B. All activities associated with the use shall comply with the standards of the noise ordinance, Chapter 8.80 of the Municipal Code;

C. Windows shall not be obscured by placement of signs, dark window tinting, shelving, racks or similar obstructions;

D. The operator of the use shall provide night lighting and other security measures to the satisfaction of the Chief of Police;

E. Exterior lighting shall not intrude on surrounding properties;

F. The operator shall demonstrate an ability to prevent problems related to potential noise, litter, loitering, crowd control and parking;

G. A security plan, including a video surveillance system, exterior lighting plan, noise, litter, loitering, crowd control and parking to the satisfaction of the Chief of Police shall be submitted to and approved by the Police Department prior to the issuing of a Certificate of Occupancy;

H. If the use contains a mixture of indoor and outdoor uses, the total square footage of each use shall be calculated together, and the more restrictive review process shall apply;

I. Each indoor and outdoor use shall comply with the parking requirements set forth in Chapter 21.41; and

J. If the use proposes to deviate from the special development standards, an Administrative Use Permit or a Conditional Use Permit shall be required.

(ORD-19-0028 § 34, 2019)

21.45.116 Check cashing, pay day loans, car title loans, signature loans and other financial services.

The following special development standards shall apply to check cashing, pay day loan, car title loan, signature loan, and other financial service businesses:

A. **Conditional Use Permit.** Required Findings for check cashing, pay day loan, car title loan, signature loan, and other financial service businesses are found in Section 21.52.212.

B. **Pay Phones.** Exterior phones, security bars and roll up doors shall be prohibited, and any existing pay phones shall be removed.

C. **Window Signage.** Windows shall not be obscured by placement of signs, dark window tinting, shelving, racks or similar obstructions.

D. **Maintenance.** All yard areas shall be developed and maintained in a neat, quiet, and orderly condition and operated in a manner so as not to be detrimental to adjacent properties and occupants. This shall encompass the maintenance of exterior facades of the building, designated parking areas serving the use, fences, and the perimeter of the site (including all public parkways).

E. **Signage.**

1. All nonconforming signs and pole signs shall be removed, including roof signs regulated under Section 21.44.710.

2. All on-site signage shall be brought into compliance with the Long Beach Municipal Code, Chapter 21.44, removed, and/or improved to the satisfaction of the Site Plan Review Committee.

3. Each check casher shall post a list of fees in English, Spanish, Tagalog, and Khmer at the cashier/check stand using a letter height not less than one-half (1/2) inch in height.

F. **Landscaping.**

1. All parking and landscaping areas on the property shall be improved and brought into compliance with the Long Beach Municipal Code by paving and striping parking areas and adding drought tolerant, native trees and shrubs.

2. All landscaping shall be permanently irrigated with a twenty-four (24) hour/seven (7) day electronic or solar powered time clock.

G. **Lighting.** Lighting shall be provided, including glare shields, in accordance with Chapter 21.41, in a relatively even pattern and in compliance with California Title 24 Energy requirements.

H. **Security.**

1. Interior and exterior video security cameras shall be installed at the front and rear of the business with full view of the public right-of-way and any area where the operator provides parking for its patrons. The cameras shall record video for a minimum of thirty (30) days and be accessible via the internet by the Long Beach Police Department (LBPD).

2. A Public Internet Protocol (IP) address and user name/password to allow LBPD to view live and recorded video from the cameras over the Internet are also required. All video security cameras shall be installed to the satisfaction of the Police Chief, Director of Technology Services, and Director of Development Services.

I. **Building Improvements.**

1. All building facades shall be improved with new paint, roofing materials, and windows to the satisfaction of the Site Plan Review Committee.

2. New canopies or architectural projections shall be incorporated to the satisfaction of the Planning Commission and/or Site Plan Review Committee.

(ORD-13-0018 § 19, 2013)

21.45.120 Commercial storage.

Open storage or storage of recreational vehicles is permitted outdoors provided the following standards are complied with:

A. **Building Required.** A building containing not less than three hundred (300) square feet of floor area shall be provided on the same parcel or an adjacent parcel associated with the same business. The building shall contain, at a minimum, employee restroom facilities and private office space for the business.

B. **Location.** Storage shall not be located within required yard areas or on required parking areas.

C. **Site Plan Review Required.** Before any construction or improvement begins, or new business license is issued to a new business licensee, or any licensed location expanded, complete site plans shall be submitted to and approved by the Planning and Building Department through the site plan review process. The site plan shall show the location and design of all buildings, structures, signs, lights, fences and landscaping.

D. **Screening.** All open storage shall be screened by a solid wall of minimum height eight feet (8′). Material being stored shall not be visible above the wall.

(Ord. C-6533 § 1 (part), 1988)

21.45.125 Commissary (standalone).

The following conditions shall apply to all standalone commissary kitchens:

A. Proximity. No other similar facility shall be located and operating within 1,000 feet of the proposed site.

B. Location. If located in a Neighborhood Commercial Zoning District (CNP, CNA, CNR), specified Community Commercial Zoning District (CCP, CCR, and CCN zones), or pedestrian oriented areas of Specific Plans or Planned Development Districts, a storefront public lobby with onsite pickup is required.

C. Hours of Operation. Within 500 feet of residential use, the operating hours for a standalone commissary shall be limited between the hours of five (5:00) a.m. and twelve (12:00) a.m. The Zoning Administrator shall have the discretion to establish appropriate hours of operation for locations that require an Administrative Use Permit, in accordance with Division IV of Chapter 21.25.

D. Parking. Off-street parking for indoor dining areas within the commissary shall be provided at the ratio required for any indoor dinner restaurant. Kitchen and production areas of the building shall be parked at the requirements specified in Chapter 21.41 for Manufacturing, processing, packing, and assembly, and the like.

E. Loading. Adequate off-street loading spaces shall be provided to prevent adverse effects upon the neighborhood. A minimum of two (2) off-street loading and unloading spaces are required for all standalone commissary uses. For a commissary greater than 3,000 square feet of GFA, loading spaces shall be provided per the requirement specified in Chapter 21.41 for: Manufacturing, packing, assembly, warehousing uses.

F. Building Facades. On any industrial or commercial building or tenant space (existing or new) elevation fronting the street, blank walls in excess of 20 feet (or as specified within the applicable zoning district, whichever is more stringent) shall be prohibited. Facades visible from the street shall incorporate architectural elements such as building plane breaks, three-dimensional elements, transparent, display, doors, changes in color and materials landscaping that result in a building with articulation.

G. Entrances and Lobbies. A commissary shall have a main entrance that is clearly visible from the public right-of-way. Entrances and lobbies along street-facing frontages shall incorporate a transparent window system for clear visibility into the building. Such glass should be clear with an exterior daylight reflectance of not more than eight percent (8%). Entrances shall be clear of blockages, landscaping, and any other obstructions. The main entrance shall lead to a lobby used to retrieve persons into the site, verify access privilege into restricted areas, or provide seating areas.

H. Storage. A commissary shall have adequate storage space for food, equipment, and supplies to be stored within the building. There shall be no outdoor storage associated with commissary operations except for trash receptacles. Storage areas shall be separated from main entrances and lobbies and must be secured and accessible only to staff of the commissary.

I. Trash Receptacles. The commissary shall have onsite trash receptacles of adequate size appropriate to the demands of the use and to accommodate separation of materials for recycling and organics. All trash receptacles shall be designed in conformance with Section 21.45.167 of the Zoning Regulations.

(ORD-26-0012 § 10, 2026)

21.45.130 Drive-through facilities.

Findings required. A decision-maker shall not grant a conditional use permit or other approval for a drive-through facility without finding:

A. Said facility has adequate vehicle queuing distance, including with due consideration for menu board location, clear of any adjacent public right-of-way, and shall not create any vehicular or pedestrian travel hazards as demonstrated in a traffic study prepared to the satisfaction of the Director of Development Services.

B. That the project substantially conforms with the purpose, intent and provisions of the General Plan, any applicable Specific Plan or Planned Development District, overlay, design guidelines, or other applicable regulation.

C. That the location and design of the facility is compatible with surrounding existing uses, includes a prominent main entrance at street or lot frontage, attractive landscaping, and includes sufficient pedestrian amenities, and interior floor area.

D. The said facility includes sufficient emissions controls to prevent idling vehicles, tunneling of emissions, and associated impacts on employees, visitors, and nearby sensitive receptors.

E. That said facility includes buffering sufficient to control any spillover impacts, including but not limited to noise, light, and debris that may impact surrounding sensitive receptors.

F. That said facility, if located within 150-feet of a residential zone, includes appropriate limits on hours of operation of the drive-through. Hours of operation for dine-in or take-out customers shall not be limited.

G. That said facility is not located in an area of existing overconcentration of drive-through facilities and is not located within a 500-foot radius of a school or park unless mitigating factors exist.

H. That development of the subject property shall not otherwise be suitable or necessary for more-intensive development that would advance the City's housing and economic goals, as described in the General Plan and Economic Blueprint.

(ORD-19-0016 § 8, 2019; Ord. C-7607 §§ 4, 8, 1999; Ord. C-6533 § 1 (part), 1988)

21.45.132 Emergency shelters.

Emergency shelters shall be developed according to the following limitations:

A. Maximum number of beds. One hundred fifty (150) beds per facility. Additional beds may be permitted through the Conditional Use Permit (CUP) process (Minor CUP required).

B. Proximity to other shelters. No limit.

C. Length of stay. Maximum of ninety (90) days.

D. Off-street parking standards. Given the nature of the use, off-street parking shall be provided only for office space in the shelter, at the same rate as that required for general professional office use, as specified in Chapter 21.41. Additionally, one (1) loading space compliant with the standards of Chapter 21.41 shall be provided for each twenty-five (25) beds or portion thereof.

E. Size and location of exterior and interior waiting and drop-off:

1. An adequately-sized waiting and drop-off area, for the sheltered persons and their personal effects, shall be provided at each emergency shelter facility. This area may be either on the exterior or the interior of the building. If exterior, this area shall not abut or adjoin a public sidewalk or right-of-way unless separated by a fence at least four (4) feet tall.

2. Said waiting/drop-off area shall comply with all requirements of the applicable Building Codes relating to such a use or occupancy.

3. Exterior waiting shall be permitted for no more than one (1) hour prior to the opening and one (1) hour after the closing of the facility each day.

F. Security and lighting.

1. For an emergency shelter with ten (10) or more beds, an adequate number of on-site security guards shall be present during the waiting/drop-off periods before opening and after closing.

2. For an emergency shelter with twenty-five (25) or more beds, an adequate number of on-site security guards shall be provided at all times when the shelter is operating.

3. Exterior lighting shall be provided at each facility as directed by the Chief of Police.

4. Other security measures, such as security cameras and recorders, security gates, or other necessary requirements, shall be provided as directed by the Chief of Police.

G. Provision of on-site management. All emergency shelter facilities shall have on-site management present at all times when the shelter is operating, and during the periods when sheltered persons are waiting before opening and after closing of the facility.

(ORD-13-0004 § 2, 2013)

21.45.133 Indoor animal adoption and boarding special development standards.

The following special development standards shall apply to businesses involving indoor animal adoption and boarding uses by right or requiring an Administrative Use Permit:

A. Location. The site shall not adjoin or abut a residential use district. Planned Development Districts allowing ground floor mixed-use commercial and residential are exempt from this requirement.

B. Size. Adoption and boarding areas shall remain an accessory component of the established primary operation and shall not exceed fifty percent (50%) of the gross floor area.

C. Building Improvements.

1. The facility shall be improved with sound abatement measures to ensure compliance with the noise ordinance, Chapter 8.80 of the Long Beach Municipal Code. Written documentation by a licensed acoustical engineer shall be provided to demonstrate compliance with the noise ordinance, subject to the approval of the Director of Development Services or designated staff.

2. Impervious flooring surfaces and floor drains shall be incorporated in the areas dedicated for recreation or boarding of animals. Operations involving the care of cats are exempt from providing floor drains.

3. Facilities shall be temperature-controlled with a heating, ventilation and air conditioning (HVAC) system. Ventilation and exhaust systems shall conform to the latest edition of the California Mechanical Code and California Building Energy Efficiency Standards for Residential and Nonresidential Buildings, as adopted and amended by Chapter 18.36 of the Long Beach Municipal Code, or as otherwise required by applicable provisions of the California Health and Safety Code.

4. Facilities incorporating the handling, preparation, or sale of food or beverages shall be designed in accordance with Title 8 of the Long Beach Municipal Code and applicable provisions of the California Health and Safety Code.

D. Operations.

1. All business activities must be confined within an enclosed building.

2. Operations and care of animals shall be in compliance with Title 6 of the Municipal Code.

3. The number of animals shall be limited to a minimum area of seventy-five (75) square feet of floor area per animal.

4. The operator shall clean all recreational and boarding areas daily and properly dispose of associated animal waste.

(ORD-19-0028 § 35, 2019)

21.45.133.6 Mobile food truck or mobile food facility on private property.

A mobile food truck or mobile food facility may be permitted as a temporary business on private property, provided:

A. An Administrative Land Use Review (ALUR) shall be obtained by the mobile food facility operator or property owner prior to operating on private property.

B. Mobile food facilities shall be limited to developed (non-vacant) non-residential sites.

C. A mobile food facility shall be parked on asphaltic, concrete paving, or equivalent hard surface to the satisfaction of the Building Official.

D. A mobile food facility shall not be located on a site which is included on any list compiled pursuant to Section 65962.5 of the California Government Code (Cortese List).

E. A mobile food facility shall sell food only.

F. Operating hours for a mobile food facility on private property shall be limited between the hours of seven (7:00) a.m. and ten (10:00) p.m., unless granted through an Administrative Use Permit, in accordance with Division IV of Chapter 21.25 of the Zoning Regulations.

G. The mobile food facility shall be prohibited from operating in any landscaped area.

H. No sales shall be made to motorists, nor shall any sales interfere with vehicular traffic.

I. The mobile food facility shall not be located in any manner that blocks or impedes on-site or off-site vehicular, pedestrian, or bicycle circulation.

J. The mobile food facility shall not occupy or impede access to required parking stalls or spaces for the primary onsite land use, unless a signed affidavit is provided that the hours of the mobile food facility and the primary onsite land use do not overlap.

K. If vehicular parking remains active near the mobile food facility operation, the following provisions shall apply:

a. The remaining parking spaces shall maintain the required dimensions and turning radius specified in Chapter 21.41 of the Zoning Regulations.

b. A temporary barrier shall be provided to buffer the active parking areas or drive aisles from any customer queuing areas.

L. The mobile food facility operator shall identify the power source when operating on private property. If the operator proposes the use of a generator, the generator location and specifications shall comply with the Noise Ordinance (Ch. 8.80, LBMC) and any required regulatory permits. Generators shall have regular maintenance and be well-tuned with genuine parts to prevent mechanical noise from loose components or worn parts.

a. Generators shall be placed far from property lines, homes, and sensitive areas, using natural terrain or existing walls as buffers. Generators shall maintain the following distance between the noise source (generator) and closest sensitive use within the defined Noise District:

(i) Noise District One: 100 feet

(ii) Noise District Two: 30 feet

(iii) Noise District Three: 18 feet

(iv) Noise District Four: 10 feet

b. If the above distances are not feasible, the applicant shall provide specifications documentation for the proposed generator for review for compliance with the Noise Ordinance.

M. All lighting affixed to the mobile food facility shall be shielded and pointed downward equivalent to the "full cutoff" lighting standard. The use of floodlights and freestanding lights are prohibited.

N. Section 21.44.600 of the Zoning Regulations shall remain in full force in effect for prohibited signs.

O. A mobile food facility shall be equipped with trash receptacles of an adequate size and quantity to accommodate all trash and refuse generated by its operation.

P. A mobile food facility operator shall be responsible for the collection and removal of all waste generated during operation of the mobile food facility. The site of operation must be left clean and free of refuse, debris, and litter at the end of each operating day and/or upon departure of the mobile food facility. All mobile food facility operators shall inspect, pick up, remove, and dispose of all trash or refuse which consists of materials originally dispensed from the truck within a 50-foot radius of the truck.

Q. Temporary fixtures such as tables, chairs, umbrellas, canopies, and signage may be set up adjacent to the mobile food facility with the property owner's consent, provided they do not obstruct required circulation paths, access, or parking. All such items must be removed at the end of operating hours. Mobile food facility operators are responsible for ensuring that any fixtures transported or used in connection with vending comply with all applicable State food safety and transportation regulations.

R. The maximum number of food trucks parked on private property at one time is subject to the approval of the property owner. In terms of number of food trucks allowed on the property, as part of filing requirements, the applicant must provide an overall site plan of the property that indicates areas that have been allocated to mobile food facilities vs. open, unallocated space.

S. A mobile food facility shall not use amplified or non-amplified sound-making devices in conjunction with operations, such as speakers, microphones, public address systems, bells, and chimes.

T. A mobile food facility shall maintain compliance with all applicable provisions of the Long Beach Municipal Code, including but not limited to, maintenance of an active business license and health permit at all times during operation.

(ORD-26-0012 § 11, 2026)

21.45.134 Outdoor animal daycare special development standards.

The following special development standards shall apply to businesses involving outdoor animal daycare services by right or requiring an Administrative Use Permit:

A. Review Process. An Administrative Use Permit (AUP) shall be required to allow public review and the opportunity to establish appropriate conditions of approval for the operation.

B. Separation distance. Outdoor dog animal daycare uses shall be at least two hundred (200) feet from the nearest property zoned or used for residential purposes.

C. Attendant Required. Staff shall be in the outdoor area whenever animals are in the outdoor area.

D. Limitation on the number of animals. The number of animals permitted in the outdoor area shall be limited in accordance with the standards set by the American Society for the Prevention of Cruelty to Animals (ASPCA) with a minimum of seventy-five (75) square feet of floor area per animal.

E. Fencing. Opaque fencing shall be required to screen all outdoor areas from adjacent uses and subject to the height requirements of Chapter 21.43 of the Long Beach Municipal Code.

F. Landscaping. Landscaping shall be provided adjacent to the outdoor fencing to allow for planting.

G. Hours of operation. Outdoor animal daycare hours of operation shall be limited to between seven (7:00) a.m. and seven (7:00) p.m., Monday through Sunday.

H. Daily cleaning. The operator shall clean all outdoor areas daily and properly dispose of associated animal waste.

(ORD-19-0028 § 36, 2019)

21.45.135 Outdoor sale of flowers and newspapers.

The sale of flowers and newspapers shall be allowed as open uses according to the following limitations:

A. The uses allowed are limited to the sale of flowers, potted plants, newspapers, magazines and greeting cards. No other mobile vendor uses are permitted by this provision;

B. The uses shall obtain a special outdoor sales permit at the zoning counter in the Planning and Building Department prior to issuance of a business license. This permit shall not be issued until compliance with the following provisions has been shown and a fee equal to a sign permit fee has been paid:

1. A twenty (20) minute curbside parking area shall adjoin the site of the flower cart or newsstand;

2. A cart or stand shall be located on private property, completely outside of the public right-of-way. An area not less than two-feet-wide (2′) on private property shall be provided on all sides from which merchandise can be viewed in order to allow vendors and customers to stand outside the public right-of-way while transacting business;

3. All applications shall be accompanied by proof of authorization by the owner of the property; and

4. Either flowers or newspapers may be sold from either carts or stands. A photograph of the cart or building plans for stands shall be submitted to the Zoning Administrator for review and approval. Approval of the request shall depend upon the cart or stand being clean, neat, of substantial construction and being aesthetically compatible to the location proposed.

(Ord. C-7326 § 25, 1995; Ord. C-7047 § 32, 1992)

21.45.140 Outdoor display for sale or rent (vehicles, equipment, garden supply, or building materials).

A. **Building Required.** A building containing not less than three hundred (300) square feet of floor area shall be provided on the same parcel or an adjacent parcel associated with the same business. The building shall contain, at a minimum, employee restroom facilities and private office space for the business.

B. **Location.** The vehicles and other display materials shall be set back five feet (5′) from a street and shall not be located in required parking areas.

C. **Surfacing.** The entire area used for display purposes shall be surfaced with not less than two inches (2″) of blacktop or equally serviceable hard pavement surface. The surfaced area shall be maintained in good condition.

D. **Landscaping.** All street frontage setback areas shall be landscaped in accordance with the provisions of Chapter 21.42 (Landscaping Standards).

E. **Screening.** Display of vehicles and garden equipment located along street frontages shall be screened by compact evergreen hedge or alternate landscaping in a manner which screens the undersides of vehicles from public view. Display of other equipment and materials shall be screened by a solid fence of at least six feet (6′) in height.

F. **Wheel Stops.** Wheel stops or some other type of protective device shall be provided as necessary to prevent vehicles from damaging fences, walls, buildings or landscaped areas, or from extending across any public or private property lines.

G. **Lighting.** All outdoor lights shall be served by underground wiring and shall be shielded from adjacent properties.

H. **Maintenance.** Outdoor display areas shall be maintained in a neat and manner nondetrimental to persons working or residing in the vicinity.

(Ord. C-7326 § 26, 1995: Ord. C-6533 § 1 (part), 1988)

21.45.150 Outdoor service and repair of vehicles and equipment.

A. **Building Required.** A building containing not less than three hundred (300) square feet of floor area shall be provided on the same parcel or an adjacent parcel associated with the same business. The building shall contain, at a minimum, employee restroom facilities and private office space for the business.

B. **Open Uses Allowed.** Unless otherwise restricted below, vehicle and equipment repair or maintenance may occur in open areas provided that appropriate screening is installed in accordance with the screening requirements of this Section.

C. **Open Uses Prohibited.** Painting, except color match testing and sandblasting shall not occur in the open.

D. **Parts and Sales Restriction.** Vehicles or equipment parked or stored on the site shall not be used as a source of parts and shall not be sold unless the business is also licensed for vehicle or equipment sales.

E. **Hours of Operation.** Outdoor vehicle or equipment repair and maintenance shall occur only between the hours of seven (7:00) a.m. and ten (10:00) p.m.

F. **Noise.** Outdoor vehicle or equipment repair and maintenance activities shall not violate the City noise ordinance, Chapter 8.80 of the Municipal Code.

G. **Screening of Work Areas.**

1. **Abutting or Adjoining Residential Uses.** All property lines which abut or adjoin a district allowing residential uses shall be provided with a solid fence or wall not less than six feet (6′) in height. Fences or walls on property lines abutting or adjoining front yard areas may not exceed three feet (3′) in height.

2. **Across Alley From Residential Use.** All property lines which abut or adjoin an alley across which residential uses are allowed shall be provided with a solid fence or wall not less than six feet (6′) in height. However, for security reasons, the fence or wall may contain gates or other open areas, provided the open area does not exceed twenty percent (20%) of the entire fence or wall length. The Director of Planning and Building may accept open decorative fences such as wrought iron in lieu of the solid fence or wall, provided wrecked and disassembled vehicles or work service areas are not visible through the fence.

H. **Screening of Wrecked or Dismantled Vehicles.** Any wrecked or dismantled vehicles or equipment parked overnight or stored on a site in the open shall be screened from the street by a solid fence or wall not less than six feet (6′) in height. However, for security reasons, fences which abut alleys or residential streets, or fences which face a major highway, a minor highway or principal street, may contain open fence areas, as long as the open area does not exceed twenty percent (20%) of the entire fence or wall length.

I. **Vehicles Outside Screening.** All vehicles or equipment parked or stored outside an area fully screened pursuant to Subsections 21.45.150.G and 21.45.150.H shall be parked or stored in a neat and orderly manner. Vehicles shall be parked parallel to each other and to property lines and/or buildings. Vehicles shall not be wrecked or dismantled; shall have hoods, trunks and doors closed; shall not be dirty or dusty; and shall not be parked or stored on public property or public rights-of-way.

J. **Surfacing.** All areas used for open vehicle and equipment repair, parking or storage shall be improved with a fully paved surface and raised concrete curbing not less than six inches (6″) in height.

K. **Curb Cuts.** All unused curb cuts shall be closed and replaced with a full height curb and sidewalk. Curb cuts shall not exceed twenty-four feet (24′) in width.

L. **Site Maintenance.** All areas visible from public rights-of-way shall be kept clean and orderly in compliance with the provisions of the property maintenance ordinance, Chapter 8.76 of the Municipal Code. All broken, cracked, depressed or damaged curbs and sidewalks shall be repaired. No vehicle or equipment repair use shall allow dirt, grime, oil or any chemicals to drain across the public sidewalk or alley in a manner which stains or discolors the sidewalk or alley.

(Ord. C-7776 § 6, 2001; Ord. C-6533 § 1 (part), 1988)

21.45.151 Publicly run post-secondary school.

A. **Purpose.** In recognition of the benefits imparted by publicly run post-secondary schools in the City and consistent with the Long Beach College Promise, of which the City is a partner, the City seeks to expand access to post- secondary education.

B. **Development Standards.** The following special development standards shall apply to changes of use to establish publicly run post-secondary schools that operate as satellite spaces offering instruction and support functions:

1. **Parking.** Parking requirements for a change of use to establish a publicly run post-secondary school shall be waived. Additionally, Sections 21.41.165 and 21.41.315 shall apply.

(ORD-24-0033 § 24, 2024; ORD-20-0018 § 23, 2020)

21.45.153 Interim housing.

The following standards shall apply to Interim housing as defined in Chapter 21.15 (Definitions) of this Title:

A. Types of Interim Housing. Interim housing facilities include, but are not limited to, bridge housing, crisis housing, recuperative care housing, stabilization housing, recovery bridge housing, and emergency shelters.

B. Coordinated Assessment. A coordinated assessment system should be utilized to increase the efficiency of assisting individuals entering an interim housing facility find the appropriate

resources and level of assistance. This will help create a consistent approach to access and deliver services for system components that include, but are not limited to, access centers, bridge housing, crisis housing, homeless prevention, housing location, housing navigation, outreach, permanent supportive housing, rapid re-housing and transitional housing.

C. Scope of Service. A scope of service shall be outlined for the proposed interim housing use. Supportive services found to be necessary should be provided on-site or clients shall be provided transportation options as needed. The interim housing facility shall accommodate the needs of the proposed residents, including but not limited to, adequate meal capabilities, sanitation facilities, linen and bedding, storage areas for personal belongings, pet accommodation or placement, and any other item or amenity deemed necessary for residents.

D. On-Site Management. Interim housing case management should be demonstrated at the appropriate level of provider-to-client ratio. On-site management may be present at all times during the operation of the facility.

E. Accessibility. Interim housing shall be located in an accessible location within one-half (1/2) mile of a transit site.

F. Parking. Off-street parking requirements shall be based on the applicability to the interim housing use. At a minimum, off-street parking using Chapter 21.41 shall be provided based on the square footage of office space, or based on the number of on-site staff, whichever is greater. In addition, one (1) loading space shall be provided for each twenty-five (25) beds of a facility.

G. Neighborhood Compatibility. All programming shall take place on site, and not permit any queueing or loitering adjacent or abutting the site. The operator shall keep the abutting area, including the public right-of-way free of litter and debris. Interim housing facilities shall adhere to the standards of the City's Noise Ordinance, Chapter 8.80 of the Municipal Code.

H. Security. An appropriate level of security shall be provided at the interim housing facility. The number of trained staff responsible for security shall be based on the number of beds provided at the facility. This may include, but is not limited to, the use of security personnel, video cameras, fencing, restricted access points and security

I. Lighting and other measures to the satisfaction of the Police Chief and Director of Development Services.

(ORD-20-0026 § 18, 2020)

21.45.155 Interim passive parks.

The following special development standards shall apply to interim passive parks as defined in Chapter 21.15 (Definitions) of this Title:

A. **Improvements.**

1. Improvements shall be limited to landscaping, walking paths and irrigation systems.

2. Park furniture is limited to benches.

3. Accessory buildings and or structures such as play equipment, tables, fire pits, barbecues, concession stands and public restrooms are not permitted.

B. **Setbacks.**

1. **Front.** The front setback shall be the same as for a principal structure in the applicable zoning district.

2. **Side.** A four foot (4′) side setback is required when abutting a residential district otherwise none is required.

3. **Rear.** A ten foot (10′) rear setback is required when abutting a residential district otherwise none is required.

C. **Hours of Operation.** Interim passive park hours of operation shall be seven-thirty (7:30) a.m. to dusk.

D. **Trash Receptacles.** Adequate trash receptacles shall be provided and maintained for the life of the use.

(Ord. C-7378 § 27, 1995)

21.45.157 Radio and television antennas.

A. **Location.** Radio and television receiving and transmitting antennas shall be permitted any place on a lot except within the front yard setback area.

B. **Height.** Antennas are permitted up to a height of sixty feet (60′) or twenty feet (20′) above a building upon which they are erected, whichever is greater, provided that:

1. A building permit is obtained to erect the antenna and/or supporting tower;

2. Any transmitting equipment is used in such a way as to minimize interference with commercial or public radio and television broadcasts.

Nothing in this Title shall authorize the construction, installation or placement of any structure permitted in this Section within the clearances from any electric public utility installation, conductor, line, wire, pole, tower or any other equipment and facilities established by the Public Utilities Commission. Documentation of compliance with these regulations shall be provided with application for a building permit.

(Ord. C-7663 § 37, 1999)

21.45.160 Retail/office commercial uses and parking structures in the R-4-H Zone.

A. **Commercial Uses.** In the R-4-H Zone, at grade commercial uses shall be located at property lines fronting on streets. A parking structure may encroach into the required yard area provided the

structure is shielded by a street level commercial use along the street frontage. The commercial uses permitted pursuant to this Subsection 21.45.160.A. shall be those and only those permitted in the CL Zone.

B. **Parking Structures.** Parking structures may project into a required yard area fronting a street provided that the entire street frontage at ground level contains commercial use, corner cutoffs, driveways, building entrances or landscape amenity areas approved by the Director of Planning and Building.

(Ord. C-6595 § 13, 1989; Ord. C-6533 § 1 (part), 1988)

21.45.163 Safe parking site.

The following standards shall apply to a Safe parking site as defined in Chapter 21.15 (Definitions) of this Title:

A. Administrative Land Use Review. The proposed Safe Parking Site shall be reviewed for compliance with required operating conditions.

B. Case Management. All participants in the Safe Parking Program shall be pre-screened by the operator. Identified service needs and case management shall be provided by the program operator with the intent of providing resources to assist participants into other available programs and/or housing.

C. Automobiles. All vehicles utilizing the Safe Parking Site must be in working order and not leaking oil or other hazardous materials. Vehicle operators must have valid motor vehicle insurance, driver's license and current vehicle registration.

D. Capacity. A maximum number of vehicles allowed in the Safe Parking Program shall be determined by the size and location of the Safe Parking Site. Recreational vehicles (RVs) are not allowed unless the parking lot is designed to accommodate oversized vehicles.

E. Hours of Operation. The recommended Safe parking site hours will be a designated twelve (12)-hour window of time, such as 6:30 p.m. to 6:30 a.m. All vehicles must leave the Safe parking site during nonprogram hours.

F. Sanitation Facilities. Restroom facilities, including hand washing facilities, will be provided on-site or immediately adjacent to the safe parking lot facility. The number of sanitation facilities required will be determined based on the number of Safe parking participants, but a minimum of at least two (2) facilities shall be provided at each Safe parking site. Adequate trash disposal facilities shall also be provided on-site. If recreational vehicles (RVs) are allowed as part of the Safe Parking Program, appropriate waste disposal facilities shall be provided for such vehicles. No disposal of graywater/blackwater is permitted by participants on or around the site.

G. Security. Adequate on-site security (twelve (12) hours per day) shall be provided during hours of Safe Parking Site operations.

H. Noise. The Safe Parking Site shall adhere to the standards of the City's Noise Ordinance, Chapter 8.80 of the Municipal Code. Excessive noise, including noise from vehicles, radios, portable devices, etc. shall be prohibited.

I. Lighting. The parking lot shall have a level of illumination that is adequate to provide visibility for security purposes.

J. Spacing. Adequate spacing between parked vehicles shall be provided for privacy. Options include a minimum distance of nine (9) feet between cars, an operational system where parked cars are offset from one another, or a privacy-type screen between vehicles is utilized.

K. Screening. The Safe parking site shall have durable and attractive screening of the parking lot for privacy and security as deemed necessary.

(ORD-20-0026 § 19, 2020)

21.45.165 Swimming pools and spas.

A. A swimming pool or spa may be placed anywhere on a lot except within the front yard setback.

B. A swimming pool or spa at a single-family home shall be isolated from the home pursuant to Article 2.5 (commencing with Section 115920) of Chapter 5 of Part 10 of Division 104 of the Health and Safety Code of the State of California.

(Ord. C-7663 § 38, 1999)

21.45.166 Tattoo parlors.

The following special development standards shall apply to tattoo parlors, whether as a primary or an accessory use:

A. No new tattoo parlor use shall be located within seven hundred feet (700') of another tattoo parlor, unless granted through an Administrative Use Permit, in accordance with Division IV of Chapter 21.25 and Section 21.52.273.B.

B. No new tattoo parlor use shall be located within seven hundred feet (700') of any public or private primary or secondary school, unless granted through an Administrative Use Permit, in accordance with Division IV of Chapter 21.25 and Section 21.52.273.B.

C. Tattoo parlors shall operate only between the hours of seven (7:00) a.m. and ten (10:00) p.m., unless granted through an Administrative Use Permit, in accordance with Division IV of Chapter 21.25 and Section 21.52.273.B.

D. Service of alcohol, marijuana based substances, or other controlled substance shall not be permitted in conjunction with a tattoo parlor use.

E. The entrance door and storefront window glazing shall be 100 percent (100%) clear and free of obstructions such as signs, window tinting, shelving, or racks.

F. "Specified anatomical areas" as defined in Chapter 21.15 (Definitions) shall not be exposed in the publicly accessible areas of the business or viewable from the public right-of-way.

G. The operator of the approved use shall prevent loitering and loud noises around the subject site during and after the hours of business operation.

H. A sign stating, "No tattoo service will be provided for anyone under the age of 18," shall be visible at all times on the door of the front entrance.

I. Lighting shall be placed above all exterior doors. Metal halide or other similar, "white light"-emitting bulbs shall be used to clearly illuminate the tenant address.

J. The proposed business shall be equipped with an audible burglar alarm system and door/window alarm company contacts for added security.

K. Security cameras providing full camera coverage of all entries and exits into the building and full camera coverage of all public rights-of-way and private parking areas provided by the business. Cameras must record in color with output of at least four hundred eighty (480) lines resolution. Recordings shall be retained for no less than thirty (30) days on an IP-configurable Digital Recording Recorder (DVR) or digital storage setup with a public IP address. The surveillance system username and password shall be provided to the Long Beach Police Department.

L. The applicant shall comply with all applicable State, County and City Health and Human Services regulations including, but not limited to the State Safe Body Art Act regarding the establishment and operation of businesses engaged in tattooing, body piercing and permanent cosmetic application.

M. The property shall be developed and maintained in a neat, quiet, and orderly condition and operated in a manner so as not to be detrimental to adjacent properties and occupants. This shall encompass the maintenance of exterior facades of the building, designated parking areas serving the use, fences and the perimeter of the site (including all public parkways).

N. Exterior security bars and roll-up doors applied to windows and pedestrian building entrances shall be prohibited.

O. Any graffiti found on site must be removed within twenty-four (24) hours of its appearance.

P. Provisions in 21.45.166.A through P may be appealed to the City's Zoning Administrator, in accordance with Section 21.10.045.

(ORD-18-0013 § 5, 2018)

21.45.167 Trash receptacles.

All required trash receptacles shall be developed according to the following standards:

A. **Minimum Size.** Each trash receptacle area shall have adequate area to contain a size appropriate to the demands of the use and to accommodate separation of materials for recycling.

B. **Screening.** All trash receptacles shall be enclosed on at least three (3) sides by a solid masonry wall of minimum height five feet, six inches (5'6"). The receptacle shall not be visible above the wall. A visually solid gate shall be provided.

C. **Location.** All trash areas shall be located and arranged so as to be readily accessible to those using the trash receptacle as well as to trash pickup vehicles.

D. **Landscaping.** All trash areas if visible from a street shall be further screened with a two foot (2') wide landscape strip. The strip shall be planted with shrubs of minimum five (5) gallon size which grow to a height of four feet (4'), with vines planted to the satisfaction of the Director of Planning and Building.

(Ord. C-7663 § 39, 1999)

21.45.168 Truck terminal and truck yard facilities.

The following special development standards shall apply to trucking terminal and yards, in all Industrial Zones:

A. Special conditions for industrial uses, Section 21.52.410 and Standards for outdoor service and repair of vehicles, Section 21.45.150 shall also apply.

B. **Storage.** Transport containers used for storing goods, materials, or equipment to be transported by truck, train, or marine vessel may be stored anywhere on a lot, with the exception of any required corner cutoff area. No more than two (2) containers shall be stacked atop one another.

C. **Clean Truck Program.** All drayage trucks, as defined in the Clean Truck Program, utilized for trucking business operations shall comply with the Clean Truck Program.

D. **Maintenance.** All yard areas shall be developed and maintained in a neat, quiet, and orderly condition and operated in a manner so as not to be detrimental to adjacent properties and occupants. This shall encompass the maintenance of exterior facades of the building, designated parking areas serving the use, fences and the perimeter of the site (including all public parkways).

E. **Facilities/Restrooms.** All trucking terminals and yards shall contain office(s) and restroom facilities that are large enough to accommodate employees and guests. Truck terminals and yards are prohibited on vacant lots.

F. **Landscaping.**

1. A ten foot (10') wide landscaping buffer shall be provided on regional corridors and major arterial streets within the front yard and street side yard setback using drought tolerant plants common to the region.

2. A five foot (5') wide landscaping buffer shall be provided on minor arterial and collector streets, within the front yard and street side yard setbacks.

3. A ten foot (10') landscaping buffer shall be provided adjacent to all residentially zoned properties using drought tolerant plants common to the region.

4. All landscaping shall be permanently irrigated with a twenty-four (24) hour/seven (7) day electronic or solar powered time clock.

G. **Lighting.** Lighting shall be provided in accordance with Chapter 21.41 in a relatively even pattern and in compliance with California Title 24 Energy requirements.

H. **Fencing.**

1. A maximum twelve foot (12') in height decorative fence is required at all driveways, parking and loading areas that are visible from the public right-of-way.

2. An eight foot (8') in height decorative block wall shall be placed on all property lines adjacent to residentially zoned properties.

3. Chainlink, barbed wire and razor wire fencing are prohibited, except when located atop an eight foot (8') or taller decorative fence on interior property lines, including a public alley.

I. **Truck Queuing, Circulation, Paving and Grading.**

1. Adequate turning radius shall be provided to allow an adequate egress and ingress to the site.

2. Trucking uses that accept deliveries or transfers from out of State trucks shall provide a minimum of thirty foot (30') wide curb approach.

3. The site shall be designed to safely accommodate on-site maneuvers of any truck used for the business, and shall permit such trucks to enter and exit the site in a forward direction, thereby avoiding backing from or into a public street, except that trucks may back into a site, but not back into the street on lots less than twelve thousand five hundred (12,500) square feet in size.

4. No loading or unloading of any materials or trailers shall be allowed on the public right-of-way, including an alley.

5. Areas utilized for the parking of trucks shall be surfaced with a minimum six inch (6") thick reinforced concrete over compacted grade to ninety percent (90%) relative compaction; or a minimum five inch (5") thick asphalt paving over six inch (6") compacted road base, over compacted grade to ninety percent (90%) relative compaction, to the satisfaction of the Director of Development Services.

6. The site shall be graded to drain in accordance with City's NPDES requirements and adequate catch basins shall be provided to screen runoff from the site.

7. Major auto repair associated with a trucking use and subletting to trucking repair businesses shall be prohibited. Minor auto repair associated with a trucking use is allowed as an accessory use.

8. Dumping of tires, oil, transmission fluids, filters, or any other hazardous materials is strictly prohibited.

(ORD-10-0033 § 2, 2010)

21.45.170 Vending carts.

Vending carts shall be allowed as open uses according to the following special development standards:

A. An administrative use permit shall be required by the City prior to issuance of a business license;

B. Vending carts are limited to developed nonresidential sites;

C. No more than two (2) signs, printed or affixed to each cart, which do not exceed two (2) square feet each, shall be permitted;

D. No sales shall be made to motorists or shall any sales interfere with vehicular traffic;

E. No vending cart operator shall place or allow to be placed any permanent or temporary fixtures at the location of the vending activity, including, but not limited to, chairs, tables, advertising material or signs not affixed to the carts or storage facilities;

F. The vending cart shall be prohibited from operating in any landscaped area;

G. The vending cart shall not be located in any manner that blocks or impedes on-site vehicular or pedestrian circulation;

H. The vending cart shall not be located in or impede access to any required parking stall or space;

I. The vending cart may operate during the hours of the retail or office complex, unless the conditions of approval contain more restrictive hours of operation in which case the more restrictive hours shall apply;

J. All vending carts shall be equipped with trash receptacles of an adequate size and quantity to accommodate all trash and refuse generated by such outdoor vending operation; and

K. The vending cart operator shall possess a valid Health Department permit if food is prepared or sold.

(ORD-24-0032 § 2, 2024; ORD-24-0003 § 2, 2024; Ord. C-7247 § 32, 1994)

21.45.300 Amortization of nonconforming open storage and uses.

A. **Illegal Uses and Legal Nonconforming Uses.** All open commercial uses not specifically permitted by this Chapter shall be prohibited on the effective date of the ordinance codified in this Section as an amendment to the Zoning Regulations, and all legal nonconforming open uses shall be terminated by September 1, 1983.

B. **Permitted Uses.** All open commercial uses specifically permitted by this Chapter which do not meet the required provisions shall be brought into compliance on the effective date of the ordinance codified in this Section as an amendment to the Zoning Regulations.

(Ord. C-6533 § 1 (part), 1988)

21.45.400 Green building standards for public and private development.

A. A green building, also known as a sustainable building, is a structure that is designed, built, renovated, operated or reused in an ecological and resource-efficient manner. Green buildings are designed to meet certain objectives such as protecting occupant health; improving employee productivity; using energy, water and other resources more efficiently; and reducing the overall impact to the environment. The City of Long Beach recognizes the benefit of green buildings and establishes a green building program.

B. The Leadership in Energy and Environmental Design (LEED) Green Building Rating System created by the U.S. Green Building Council (USGBC) is hereby established as the rating system the City shall use in administering the green building program. Alternative green building systems may be substituted, at the discretion of the Director of Development Services, if the system can be demonstrated to achieve a comparable standard of achievement as LEED.

C. No building permit shall be issued for the types of projects specified in this Section unless the project meets the level of LEED performance specified in this Section. The Director of Development Services shall have the authority to issue a clearance for all projects subject to the provisions of this Section for LEED compliance. Issuance of clearance shall be based on procedures established by the Director of Development Services.

1. The following types of projects shall meet the intent of LEED at the certified level:

    a. A new residential or mixed use building of fifty (50) dwelling units and fifty thousand (50,000) gross square feet or more;

    b. A new mixed use, or nonresidential building of fifty thousand (50,000) square feet or more of gross floor area;

    c. The alteration of an existing residential or mixed use building that results in the addition of fifty (50) dwelling units and fifty thousand (50,000) gross square feet or more;

    d. The alteration of an existing mixed use, or nonresidential building that results in the expansion of fifty thousand (50,000) gross square feet or more; and

    e. A new construction or substantial rehabilitation project for which the City provides any portion of funding.

2. The following type(s) of projects shall obtain LEED silver certification:

    a. A new building on City land consisting of seven thousand five hundred (7,500) square feet or more of gross floor area;

b. The alteration of an existing building on City land that results in the addition of seven thousand five hundred (7,500) square feet or more of new gross floor area.

D. A project may be registered with the USGBC to obtain the required LEED certification, or a project may be certified by a third party as meeting the intent of LEED at the level required by this Section.

E. Projects consisting of multiple buildings on one (1) or several lots shall be evaluated based on total gross floor area or number of dwelling units for the entire building footprint to determine applicability of this Section.

F. The Director of Development Services shall have the authority to determine if the provisions of this Section apply to a given project in cases of uncertainty.

G. Each project shall apply for compliance in whichever LEED rating system the Director of Development Services deems most suitable to the project type. The project shall use the version of the rating system in effect at the time the project is submitted for a building permit unless the project developer has elected to register with the USGBC in which case the project may use the rating system version which was in effect at the time the project registered.

H. If a commitment to LEED gold or higher certification is made, the project may be eligible for flexibility in regard to certain development standards including, but not limited to, usable open space and off-street parking requirements, as determined by the Director of Development Services.

I. The following development standards shall apply to all projects requiring site plan review:

1. Canopy trees shall provide shade coverage, after five (5) years of growth, of forty percent (40%) of the total area dedicated to parking stalls and associated vehicular circulation, or paving materials with a solar reflectance index of at least twenty-nine (29) shall be used on a minimum of fifty percent (50%) of paving surfaces dedicated to parking stalls and associated vehicular circulation;

2. Bicycle parking shall be provided at a minimum of one (1) space for every five (5) residential units, one (1) space for each five thousand (5,000) square feet of commercial building area, one (1) space for each seven thousand five hundred (7,500) square feet of retail building area and one (1) space for each ten thousand (10,000) square feet of industrial building area. Fractions shall be rounded up to whole numbers;

3. Roofs shall be designed to be solar-ready subject to all applicable state and local construction codes and provide conduit from the electrical panel to the roof; and

4. A designated area for the collection of recyclables shall be provided adjacent to the area for the collection of waste.

(ORD-19-0032 § 12, 2019; ORD-09-0013 § 5, 2009)

21.45.500 Adaptive reuse projects.

The following special development standards shall apply to adaptive reuse projects, as defined in Section 21.15.064.5:

A. **Land Use.** The intent of the adaptive reuse is to allow conversion of existing structures into new land uses that maintain or enhance the character of a neighborhood or district, extend the life of the building, reduce use of new construction materials and reduce construction waste generated, and provide additional employment or housing opportunities in appropriate and compatible locations.

1. An adaptive reuse project may change an existing building to any Neighborhood Commercial and Residential (CNR) District permitted use with the following exceptions:

   a. Adaptive reuse projects are not allowed in single-family or duplex residential zoning.

   b. Non-residential uses introduced into any multiple-family residential zones through adaptive reuse shall be compatible with the surrounding neighborhood as determined by the Site Plan Review Committee.

   c. No new residential uses shall be introduced through adaptive reuse into any industrial zone.

2. Any discretionary review, including an Administrative Use Permit or Conditional Use Permit required within the CNR zone for a particular use, is required for an adaptive reuse project.

3. Any request for a land use not explicitly allowed within the CNR zone as part of an adaptive reuse project shall require an Administrative Use Permit.

B. **Setbacks.** Existing principal structures with non-conforming setbacks may remain. Any additions or facade changes involving greater than twenty-five (25) continuous linear feet of exterior wall facing a public right-of-way shall comply with zoning setbacks, unless waived by the Site Plan Review Committee.

C. **Height.** Heights of existing buildings shall be exempt from established height limits. The addition of parapets or roof structures, equipment or other enclosures or non-habitable space is allowed. Any new or additional habitable space or floors shall comply with height limits of the underlying zoning district, unless waived by the Site Plan Review Committee.

D. **Residential Unit Size.** A minimum dwelling unit size of four hundred fifty (450) square feet and project average of no less than seven hundred (700) square feet shall be provided, unless waived by the Site Plan Review Committee.

E. **Existing Parking.** The number of existing parking spaces on-site shall be maintained. A reduction in existing parking may be requested as set forth in Section 21.41.223.

F. **Required Parking in Designated Parking Impacted Areas.** Parking for adaptive reuse projects in designated parking impacted areas shall be provided as follows:

1. Residential parking shall be a minimum of one (1) space per dwelling unit.

2. Parking for all non-residential uses shall be a minimum of two (2) spaces per every one thousand (1,000) square feet of Gross Floor Area.

3. In mixed use adaptive reuse projects, the first three thousand (3,000) square feet of non-residential space shall be exempt from parking requirements.

4. Seventy-five percent (75%) of the minimum required parking shall be provided for assembly, office or retail conversions in mixed use or stand-alone buildings.

5. Tandem parking shall be allowed up to seventy-five percent (75%) of provided spaces.

6. Shared parking arrangements shall conform to Section 21.41.222 or Section 21.41.223.

7. Any request for reduction in parking beyond the minimums in this Subsection 21.45.500.F shall be made in accordance with Section 21.41.223.

G. **Required Parking in General.** Parking for adaptive reuse projects outside of designated parking impacted areas shall be provided as follows:

1. No additional off-street parking shall be required for conversion of a nonresidential building to residential uses.

2. Parking for all non-residential uses shall be a minimum of one (1) space per every one thousand (1,000) square feet of usable internal space.

3. In mixed use adaptive reuse projects, the first six thousand (6,000) square feet of non-residential space shall be exempt from parking requirements.

4. Fifty percent (50%) of the minimum required parking shall be provided for assembly, office or retail conversions in mixed use or stand-alone buildings.

5. Tandem parking shall be allowed up to fifty percent (50%) of provided spaces.

6. Off-site or shared parking arrangements shall conform to Section 21.41.222 or Section 21.41.223, as applicable.

7. Any request for reduction in parking beyond the minimums in this Subsection 21.45.500.G shall be made in accordance with Section 21.41.223.

H. **TDMs required.** An Adaptive Reuse project, whether residential or non-residential or mixed-use, that does not meet the parking requirements of this Section, or which is exempt from change of use parking requirements or minimum parking requirements, shall provide the Transportation Demand Management (TDM) measures set forth in Subsection 21.41.223.D, but shall not be

required to obtain the Administrative Use Permit (AUP) required by that Section, nor to provide any parking spaces if otherwise exempt. This Subsection 21.45.500.H shall not be construed to create or maintain any minimum parking requirement for an adaptive reuse project.

I. **Other provisions.** The adaptive reuse project shall comply with Floor Area Ratio (FAR), Landscaping, Lot Coverage, Open Space, and any other applicable development standards of the underlying zone, unless waived by the Site Plan Review Committee.

(ORD-24-0033 § 25, 2024; ORD-14-0004 § 3, 2014)

21.45.600 Micro-Unit Projects.

The following development standards shall apply to Micro-Unit projects:

A. Purpose. To develop a pilot program for Micro-Unit projects in areas of the City that are amenity-rich and located near quality public transit systems in accordance with recommendation 3.11 of the City's adopted 29 policy recommendations to address the affordable housing crisis in the City, by developing innovative housing uses and encouraging housing production. This Ordinance establishes a "pilot program" to allow Micro-Unit projects in the Downtown (PD-30) and Midtown (SP-1) areas.

B. Definition of terms.

"Micro-Unit project" is a development comprised either wholly or partially of Micro-Units.

C. Land use. Micro-Units proposed in accordance with this Section shall be allowed where residential uses are allowed in PD-30 and SP-1.

D. Applicability of underlying Planned Development or Specific Plan Regulations. The development standards associated with Micro-Units in this Section shall supersede the development standards as set forth in PD-30 and SP-1.

E. Micro-Unit size. The minimum Micro-Unit size shall be no smaller in square footage, or contain fewer amenities, than is permitted by the City's current Building Code Regulations.

F. Open space requirement. Ten percent (10%) of the total lot area shall be provided as minimum common usable open space. A Micro-Unit project's open space must incorporate at least two (2) or more of the following types of common open space amenities:

1. Communal lounge room on every floor;

2. Communal kitchen(s);

3. Rooftop outdoor space with minimum dimensions of twelve foot (12') length by twelve foot (12') width, and a minimum area of one hundred fifty (150) square feet that includes seating areas, landscaping, water features, programmatic features, or other equivalent high-quality rooftop amenities to the satisfaction of the Site Plan Review Committee; or

4. Usable open space described in Section 21.15.3160.

G. Required parking. Parking requirements per the parking regulations specified in PD-30 and SP-1 shall apply; however, Micro-Unit projects are eligible for a vehicular parking reduction by incorporating Transportation Demand Management (TDM) strategies that aim to reduce reliance on automobiles and associated congestion and emissions. Subject to the discretion of the Site Plan Review Committee, TDM strategies may include following:

1. Carpool/vanpool;

2. Garage lifts (stacked parking);

3. Unbundled parking (parking spaces are rented or sold separately, rather than automatically included with the rent or purchase price of a residential or commercial unit);

4. Off-site parking within one thousand (1,000) linear feet walking distance of the property line (a shared parking agreement may be required to the satisfaction of the Site Plan Review Committee);

5. Joint use (shared parking);

6. Transit/bicycle/pedestrian system improvements;

7. Adequately monitored on-street parking rates and time restrictions;

8. Transit passes (provide free or reduced-price transit passes to Micro-Unit residents or employees). An incentive program could be developed for developers, property managers, and employers to substitute a percentage of required parking spaces. A maximum limit will be determined by the Site Plan Review Committee;

9. Other proposals.

All parking reduction requirements shall be approved at the discretion of the Site Plan Review Committee, which will determine the appropriate level of parking demand reduction generated by proposed strategies on a project-specific basis; however, a TDM program shall not reduce parking to zero.

Bicycle parking shall be provided at a rate of one (1.0) space for every five (5) Micro-Units. Fractions shall be rounded up to whole numbers.

H. Other provisions. Floor Area Ratio (FAR), Landscaping, Lot Coverage, Setbacks, Height, and any other applicable development standards of the underlying Specific Plan or Planned Development District shall be complied with, unless waived by the Site Plan Review Committee, or relief is granted in the form of bonuses, waivers or incentives, through the applicable density bonus regulations in exchange for required percentages of covenanted, restricted affordable units.

I. Adaptive Reuse. Adaptive Reuse projects that comply with this Section shall not be subject to any density limitations, unit size, or unit mix requirements of applicable Adaptive Reuse provisions.

J. Existing Dwelling Units. Projects that propose to convert existing dwelling units into Micro-Units shall be prohibited.

K. Review process. Site Plan Review shall be required pursuant to Chapter 21.25 of this Title for all Micro-Unit projects. If Micro-Units proposed as part of a Micro-Unit project meet the criteria for a Special Group Residence, as defined by Section 21.15.2810, it shall require a Conditional Use Permit, consistent with applicable PD-30 and SP-1 provisions.

L. Findings. Findings shall be made in accordance with Section 21.25.506 for approval of a Micro-Unit project.

M. Sunset. The subject provisions allowing and regulating Micro-Units shall remain in effect until a total of five hundred (500) Micro-Units are entitled. At the point at which projects comprising five hundred (500) Micro-Units are entitled, this Section shall automatically sunset and become null and void unless extended by action of the City Council, after review and recommendation by the Planning Commission.

(ORD-20-0048 § 2, 2020)

21.45.700 Adult-use cannabis delivery-only dispensaries.

The following special development standards shall apply to Adult-use cannabis delivery-only dispensaries:

A. **Building Facades.** On any industrial or commercial building or tenant space (existing or new) elevation fronting the street, blanks walls in excess of 20 feet (or as specified within the applicable zoning district, whichever is more stringent) shall be prohibited. Facades visible from the street shall incorporate architectural elements such as building plane breaks, three-dimensional elements, transparent, display, doors, changes in color and materials landscaping that result in a building with articulation.

B. **Window coverage.** On any commercial or industrial or tenant space elevation fronting the street, standard windows or display windows shall comprise at least twenty-five percent (25%) of the elevation that encompasses the proposed use. Windows along street-facing frontages shall be transparent. Such glass should be clear with an exterior daylight reflectance of not more than eight percent (8%).

C. **Entrances and Lobbies.** Delivery-only dispensaries shall have a main entrance that is clearly visible from the public right-of-way. Entrances shall be clear of blockages, landscaping, and any other obstructions. The main entrance shall lead to a lobby used only to retrieve persons into the site and verify access privilege into restricted areas. Entrances into a building or tenant space on the dispensary site shall be locked at all times. Access into the facility and/or restricted areas shall be controlled by the managers and staff of the delivery-only dispensary.

D. **Distribution Area.** Each delivery-only dispensaries shall have a specific area designated for the secure transfer of cannabis products between a vehicle and the restricted area.

E. **Storage.** Each delivery-only dispensary shall have adequate storage space for all cannabis products. The storage areas shall be for the sole use of each individual permittee and shall not be shared

with another delivery-only permittee. Storage areas shall be separated from main entrances and lobbies and must be secured and accessible only to managers and staff of the delivery-only dispensary.

(ORD-24-0025 § 2, 2024)

CHAPTER 21.47 DEDICATION, RESERVATION AND IMPROVEMENT OF PUBLIC RIGHTS-OF-WAY

21.47.010 Purpose.

It is the intent of this Chapter to provide for the orderly acquisition and improvement of public rights-of-way for the benefit of the public health, safety and welfare. The provision and improvement of public rights-of-way are necessary requirements of private property owners to ensure that private property development does not adversely impact other public and private facilities and services.

(Ord. C-6563 § 1 (part), 1989: Ord. C-6549 § 1 (part), 1988: Ord. C-6533 § 1 (part), 1988)

21.47.020 Dedication and reservation.

A. **Dedication—New Development Requiring Site Plan Review.** Any residential, commercial, industrial or institutional development which requires site plan review under Section 21.25.502 and which is located on a lot abutting public rights-of-way shall be required to dedicate a portion of that lot for widening of the public rights-of-way to the standards specified in Table 47-1 if positive findings can be made pursuant to Section 21.25.506. The potential right-of-way area shall be dedicated prior to the issuance of a building permit for such proposed new construction.

B. **Reservation—Other Development.** Any development which does not require site plan review, where the site abuts a major, secondary or minor highway designated by the Transportation Element of the General Plan, shall be required to reserve a portion of the lot for widening of the highway right-of-way to the standards specified in Table 47-1. No reservation shall be required for alley widening or for widening of abutting streets which are not designated as highways. The City will pay fair market value to purchase the reserved area when the highway is widened.

C. **Width.** Table 47-1 establishes the standard right-of-way widths for the various classifications for public rights-of-way. The right-of-way dedication or reservation on an individual lot shall be one-half (1/2) of the required standard width, measured from the centerline of the street.

1. **Greater Widths.** Greater widths may be required as conditions of subdivision maps, site plan review, conditional use permits or standards variances.

Table 47-1
Standard Right-of-Way Widths

Roadway Classification	Width (Feet)
Major highway with medians	106
Major highway without medians	100
Secondary highway	80

Roadway Classification	Width (Feet)
Minor highway	60
Residential street	56
Private street* (two-way, both sides developed)	46
Private street* (two-way, one side developed)	33—37
Private street* (one-way, both sides developed)	36
Private street* (one-way, one side developed)	23—27
Alley, two-way	20
Alley, one-way	12
Bicycle path, two-way bicycle path adjoining State highway	17
Bicycle path, one-way	8
Bicycle path, two-way, sidewalk without street trees	17
Sidewalk at curb	6
Sidewalk inside street trees	5
* Private streets shall comply with the following cross section dimensions:	

Type of Street	10′ Travel Lanes	8′ Parking Lanes	4′ Tree Well Area	5′ Sidewalk
Two-way, both sides developed	2	2	2	2
Two-way, one side developed	2	1	1	1
One-way, both sides developed	1	2	2	2
One-way, one side developed	1	1	1	1
For one-sided developments, street trees are to be placed on the opposite side of the street, in knuckles projecting into the parking lane. The trees are to be located thirty-two feet (32′) on center. In addition, trees are also required in the front yards on the development site.				

2. **Reduced Widths.** The required standard width may be reduced at specific locations on specific streets due to unusual conditions, as authorized by the Director of Public Works or his designee.

D. **Effect on Required Yard Areas.** All required yard areas shall be measured after the dedication or reservation.

E. **Reservation—Permitted Structures.** Only the following structures shall be permitted in, over or under reserved areas:

1. A fence or garden wall as provided in Chapter 21.43;

2. A planter, porch, patio or deck not more than three feet (3') in height;

3. A roof eave, balcony, oriel window or similar projection, provided that projection has a vertical clearance of at least eight feet (8') between the ground and the lowest point of the structure and such projection does not project more than four feet (4') beyond the reservation line; and

4. On-premises and off-premises signs as provided in Chapters 21.44 and 21.54.

F. **Reservation—Nonconformities.** Whenever a structure was erected prior to the establishment of a reserved area and projects into that area, it shall be nonconforming to the provisions of this Title, and the provisions of Chapter 21.27 relative to nonconformities shall apply.

(Ord. C-7326 § 27, 1995; Ord. C-6684 § 38, 1990; Ord. C-6563 § 1 (part), 1989: Ord. C-6549 § 1 (part), 1988: Ord. C-6533 § 1 (part), 1988)

21.47.030 Improvements.

A. **Applicability.** Prior to the issuance of occupancy permits for any new development, a property owner shall make all required improvements and repairs to abutting public rights-of-way. The improvements and repairs shall extend along the width and/or depth of the property and for a reasonable distance beyond the property as is necessary to complete the improvement or repair. Existing improvements that are damaged and that may have been damaged during construction of the building shall also be repaired.

B. **Required Improvements—All Projects.** All projects shall be required to provide the following right-of-way improvements as are deemed necessary and applicable by the Director of Public Works:

1. **Sidewalk and Parkway.** Construction or repair of a sidewalk and parkway adjoining the site. The sidewalk shall have a minimum clear width of five feet (5') with a parkway, or six feet (6') if the sidewalk adjoins the curb;

2. **Curb and Gutter.** Construction or repair of curbs and gutters adjoining the site. All unused curb cuts shall be replaced with a full-height curb and gutter;

3. **Street Trees.** As required by Subsection 21.42.060.B.1; and

4. **Bicycle Trail.** Construction of bicycle trail as required by the "Bike Route System" adopted by the City Council.

C. **Required Improvements—New Development Requiring Site Plan Review.** In addition to the improvements required above, any new residential, commercial, industrial or institutional development which requires site plan review shall provide the following improvements as are deemed necessary and applicable by the Director of Public Works, through the submission of positive findings pursuant to Section 21.25.506.

1. **Alley Paving.** Construction, replacement, repair or extension of alley paving up to standard width. The alley shall be paved the length of the site. If vehicle access is taken from the alley, the Director of Public Works may also require that the alley be paved to a point where the alley intersects a paved public right-of-way, and curb returns shall be relocated as necessary.

2. **Alley Lighting.** Construct or install on-site alley lighting.

3. **Utilities Relocation.** Relocate utilities as necessary to provide for the improvements outlined above.

D. **Required Improvements—Major Projects.** In addition to the improvements required in Subsections B and C of Section 21.47.030, major projects shall provide the additional improvements required by this Section as are deemed necessary and applicable by the Director of Public Works. A "major project" is defined to be a new residential development with twenty-one (21) or more units, and a commercial, industrial or institutional development which requires site plan review.

1. **Roadway Paving.** Construction, replacement, repair or extension of roadway paving to standard street width as required in Table 47-1.

2. **Traffic Signals and Street Signs.** Provide a prorated share of the cost of all roadway signal and street sign modifications attributable or partly attributable to the development.

3. **Street Lights.** Install or relocate street lights. This may include widening the right-of-way as necessary.

4. **Utilities Relocation.** Relocate utilities as necessary to provide for the improvements outlined in paragraphs 1 through 3 above.

E. **Standards.** All improvements within public rights-of-way shall be installed in conformance with the specifications on file with the office of the City Engineer.

(Ord. C-7326 § 28, 1995; Ord. C-7032 § 37, 1992; Ord. C-6563 § 1 (part), 1989: Ord. C-6549 § 1 (part), 1988: Ord. C-6533 § 1 (part), 1988)

Table 47-2
Summary of Dedication, Reservation and Improvement Requirements for All Development Projects

	Right-of-Way		Improvements		
Projects	**Reservation (applies only to designated highways)**	**Dedication (streets, highways and alleys)**	**Sidewalk, Parkways, Curb and Gutter, Street Trees, and Bicycle Trail**	**Alley Paving, Alley Lighting, Utilities Relocation**	**Roadway Paving, Traffic Signals, and Street Signs, Street Lights, and Utilities Relocation**
Residential projects with 21 units or more and all non-residential projects requiring Site Plan Review		X	X	X	X
Residential projects requiring Site Plan Review with less than 21 units		X	X	X	
Projects not requiring Site Plan Review but located on major, minor or secondary highway	X		X		
All other projects			X		

21.47.040 Relief from requirements.

Relief from the requirements prescribed by this Chapter may be granted through the "Standards Variance" procedure (Division III of Chapter 21.25 of this Title), provided that the Director of Public Works files a request and recommendation with the Zoning Administrator prior to the hearing, and provided that the only finding required to grant relief is that the dedication and/or improvement is not necessary for a public purpose generated at least in part by the development or that the cost of the dedication and/or improvement is proportionally excessive when compared to the scale of the project or demand generated from the project.

(Ord. C-6563 § 1 (part), 1989: Ord. C-6549 § 1 (part), 1988: Ord. C-6533 § 1 (part), 1988)

CHAPTER 21.50 INTERIM PROHIBITION OF USES

21.50.010 Purpose, intent and definitions.

A. The purpose of this Chapter 21.50 is: (1) to define the nature of interim ordinances enacted to avoid development that would negate the impact of planning or zoning studies, or rezoning or regulation amendments relating to such studies, being considered or undertaken at the time of initiation of the interim ordinance; (2) to set forth the procedures under which such interim ordinances may be initiated and enacted; (3) to provide for notification of such enactment; and (4) to provide for termination of such interim ordinances in a timely manner. This Chapter sets forth the exclusive manner and means for enacting interim land use limitations in the City of Long Beach.

B. As used in this Chapter 21.50, "interim ordinance" means an ordinance enacted pursuant to this Chapter as an emergency ordinance in the sense of Section 211 of the Charter of the City of Long

Beach for the purpose of prohibiting or restricting certain land uses or the application of certain developmental standards and entitlements pending the completion of planning or zoning studies, rezonings or amendments to the zoning regulations as set forth in this Chapter.

C. It is the intent of the City Council in enacting this Chapter that only prohibitory ordinances should be enacted and that the authority granted herein should not be utilized for affirmative/expansive zoning or planning provisions or for the purpose of giving immediate effect, outside regular procedures, to normal rezoning or zoning regulation amendments.

(Ord. C-7247 § 35 (part), 1994)

21.50.020 Conditions for initiation.

A. All interim ordinances pursuant to this Chapter may be enacted if and only if conditions are found by the City Council to exist at the time of adoption as follows:

1. Existing zoning permits one (1) or more uses or development standards which are or may be in conflict with a contemplated general plan, specific plan or zoning proposal that the City Council, Planning Commission or Planning staff is considering or studying; or

2. The City Council, Planning Commission or Planning Department has formally initiated such a study which it intends to complete within a reasonable time; or

3. A rezoning or Zoning Regulation amendment has been formally initiated which, if enacted, will be in conflict with existing zoning or regulations; and

4. The City Council has specifically identified the precise nature of the proposed study, rezoning or Zoning Regulation amendment and the geographic area or areas which will be or may be affected by the study, rezoning or amendment.

5. Where any interim ordinance enacted or amended would take effect in the Coastal Zone, the City Council has made findings as required by Section 21.50.050.

B. **Method of Initiation.** The City Council may initiate all interim ordinances presented to this Chapter by:

1. Adopting a minute order pursuant to agenda request to: (a) initiate a rezoning, Zoning Regulation or General Plan amendment, specifying the precise nature, location and impact of the rezoning or amendment; and (b) requesting the City Attorney, in cooperation with the Department of Planning and Building, to prepare an interim zoning ordinance pursuant to this Chapter 21.50 for notice and placement on the City Council agenda for hearing at its third meeting next following such adoption;

2. At the third City Council meeting following said action, the City Council shall, after hearing, consider adoption of the ordinance so prepared, which ordinance shall include an estimate of the time needed to complete the processing of the rezoning or amendment and any necessary studies undertaken relating to those actions. The City Clerk shall immediately notify the Director of Planning and Building of the action taken at such meeting;

3. During the period between initiation of an action pursuant to this Section and the adoption or rejection of an ordinance pursuant to Subsection 21.50.020.B.2, no application shall be accepted for, nor shall any permit or other entitlement for use of any kind be issued for, any project or proposed use inconsistent or in conflict with the initiated action. Any application accepted contrary to the provisions of this Section shall be returned, with refunded filing fee, to the applicant upon discovery of the mistaken acceptance.

(Ord. C-7319 § 2, 1995; Ord. C-7247 § 35 (part), 1994)

21.50.030 Notification of action.

A. Immediately following adoption of a minute order as set forth in Subsection 21.50.020.B.1, the City Clerk shall immediately so notify the Director of Planning and Building who shall mail notice of such action to every applicant for a building permit then on file with and pending before the Department of Planning and Building that is or might be affected by such action or the ordinance to be considered pursuant to it.

B. The notice shall set forth in full the motion and minute order so adopted and shall indicate, in bold-faced type, that the action and any interim zoning ordinance subsequently adopted may affect pending applications.

C. The failure of any person to receive notification pursuant to this Section 21.50.030 shall not be construed to void or nullify the effect of any action taken pursuant to this Chapter.

(Ord. C-7247 § 35 (part), 1994)

21.50.040 Adoption of interim ordinance.

A. Notwithstanding any other provision of this Title 21, including, but not limited to, Section 21.10.060, and subject to the requirements of Sections 21.50.020 and 21.50.030, and following notice pursuant to Section 65090 of the California Government Code and public hearing, but without following the procedures otherwise required preliminary to the adoption of a zoning ordinance, the legislative body, to protect the public safety, health and welfare, may adopt as an emergency ordinance in the sense of Section 211 of the Long Beach City Charter an interim ordinance prohibiting any uses or development standards which may be in conflict with a contemplated general plan, specific plan, rezoning or Zoning Regulation amendment or proposal which the legislative body, Planning Commission, or the Planning Department is considering or studying or intends to study within a reasonable time.

B. The interim ordinance shall be of no further force and effect one (1) year from its date of adoption. After notice pursuant to Section 65090 and public hearing, the legislative body may, by emergency ordinance, extend the interim ordinance for one (1) year.

C. When any interim ordinance has been adopted pursuant to this Section, every subsequent ordinance adopted pursuant to this Section, covering the whole or a part of the same property and

imposing the same or similar interim restrictions, shall automatically terminate and be of no further force or effect upon the termination of the first such ordinance or any extension of the ordinance as provided in this Section.

(Ord. C-7247 § 35 (part), 1994)

21.50.050 Effect of interim ordinance in the coastal zone.

Any interim ordinance enacted or amended pursuant to this Chapter 21.50 may only take effect in the coastal zone without prior Coastal Commission review and approval where such an ordinance is not in conflict with the California Coastal Act and the City Council so finds at the time of adoption of the ordinance or amendment of the ordinance. In all other instances, including ordinances which propose to selectively prohibit either certain types of uses or uses in portions of the coastal zone while authorizing approval of other uses, or ordinances which propose to selectively prohibit the application of certain development standards in any or all portions of the coastal zone, the City may not prohibit the uses or development standards identified in the local coastal program within the coastal zone until the ordinance is submitted to the Coastal Commission and approved pursuant to California Public Resources Code, Section 30514.

(Ord. C-7319 § 1, 1995: Ord. C-7247 § 35 (part), 1994)

CHAPTER 21.51 ACCESSORY USES

21.51.010 Purpose.

The uses listed in Chapters 21.31 through 21.36 as accessory uses (A) are permitted subject to the development standards for the zone in which the use is located and subject to additional conditions and specifications outlined in this Chapter. If no special conditions are prescribed in this Chapter or in Chapters 21.31 through 21.36, then the use need conform only to the development standards for the zone in which it is located.

(Ord. C-6533 § 1 (part), 1988)

DIVISION I.

USE RESTRICTIONS

21.51.110 Use restrictions.

The following are not considered accessory uses:

A. **Additional Dwelling Units.** Any use which increases the number of dwelling units in any building or on any lot beyond that permitted in the district, except for accessory dwelling units as described in Section 21.51.276.

B. **Alcoholic Beverage Sales.** The sale of alcoholic beverages, whether on or off-site, shall not be considered an accessory use to any use, except department stores and florists, regardless of traditional associations or limited proportion of sales. Alcoholic beverage sales shall always be considered a principal use;

C. **Gun Repairs and/or Sales.** Gun repairs and sales are separate principal uses and shall not be considered accessory uses to any use; or

D. **Storage of Inoperative, Dismantled or Wrecked Vehicles in Residential Districts.** The storage of more than two (2) inoperative, dismantled or wrecked vehicles shall not be considered an accessory residential land use and shall be prohibited in all residential districts.

(ORD-17-0031 § 10, 2017; Ord. C-7776 § 12, 2001; Ord. C-7047 § 24, 1992; Ord. C-6533 § 1 (part), 1988)

DIVISION II.

USE CONDITIONS

21.51.201 Accessory use conditions.

The following conditions and specifications shall apply to the specified accessory uses in all zone districts.

(Ord. C-6533 § 1 (part), 1988)

21.51.203 Active senior citizen housing.

The following conditions shall apply to housing for active senior citizens:

A. Density shall be limited to that of the R-4-N zoning district at the applicable lot width.

B. The parking shall be provided as designated in Table 41-1A.

C. The use shall not abut or adjoin an automobile service or repair use.

D. The use shall comply with all applicable development standards of the R-4-N zone except for height and setbacks which shall comply with the standards of the district in which the use is located.

(Ord. C-6895 § 31, 1991)

21.51.205 Amusement machines and electronic video games.

A. **Locations Prohibited.** Amusement machines shall not be permitted at locations licensed for the off-site consumption sale of general alcoholic beverages where such machines are located within sixty feet (60′) of the display of such alcoholic beverages.

B. **Restrictions.** The following restrictions shall apply to the operation of amusement machines and electronic video games. However, the restrictions shall not apply to jukeboxes, musical apparatuses, baseball batting cages, tennis practice cages, amusement rides, ping pong tables or similar uses.

1. No more than four (4) amusement machines or video games shall be established at any one (1) site where such machines are permitted as accessory uses.

2. Persons owning, controlling or managing any amusement machine or video game shall not permit any person under the age of eighteen (18) to operate any such machine between six a.m. and three p.m., Monday through Friday, from September 10 through June 20, except national holidays. Such limitations shall be clearly posted by July 1, 1989, on a sign provided by the Department of Planning and Building, in a location clearly visible to anyone attempting to play any amusement machine or video game.

3. Amusement machines or video games of an adult nature, as defined in Chapter 21.15 (Definitions) shall not be allowed as an accessory use unless the locational restrictions of Section 21.45.110 (Special Development Standards—Adult Entertainment) are complied with.

4. All uses with amusement machines or video games, in excess of those allowed above shall remove such amusement machines or video games within ninety (90) days of notification that the video games are nonconforming to these provisions.

(Ord. C-6595 § 14, 1989: Ord. C-6533 § 1 (part), 1988)

21.51.210 Animals (household pets).

The keeping of household pets shall be subject to the following limitations:

A. **Number.** A total of not more than four (4) weaned household pets may be kept at one (1) site, unless any of the weaned pets are dogs bred pursuant to a permit issued under Section 6.16.190 of this code, in which case all such weaned dogs may be kept at one (1) site until such dogs have reached the age of four (4) months. This limitation shall not apply to fish, rodents (other than rabbits), or caged birds (provided the birds are not allowed to fly free and are maintained in accordance with all applicable health regulations).

B. **Maintenance.** Household pets shall be kept in a manner which does not damage or pose hazards to people or property and which does not generate offensive dust, odors or noise.

C. **Horses.** Horses may be kept subject to the provisions of Chapter 21.38 (Horse Overlay District).

D. **Other Animals.** Dangerous or wild animals as defined in Section 6.16.030 of the Municipal Code shall not be kept in any residential zone.

(ORD-06-0012 § 5, 2006; Ord. C-7780 § 2, 2001; Ord. C-6533 § 1 (part), 1988)

21.51.215 Banquet room rental.

A restaurant banquet room may be rented for private functions, provided a portion of the restaurant remains open to the public.

(Ord. C-7247 § 33 (part), 1994)

21.51.220 Caretaker's or nightwatchman's residence.

Caretaker's or nightwatchman's residences are permitted accessory uses only if used in direct conjunction with a permitted nonresidential use.

(Ord. C-6533 § 1 (part), 1988)

21.51.225 Catering (food preparation).

Catering which involves food preparation shall be permitted as an accessory use only to an existing restaurant. If a catering business does not involve food preparation but instead involves only party planning and counseling, it shall be considered an office use.

(Ord. C-6533 § 1 (part), 1988)

21.51.225.5 Commissary to accessory to restaurant.

A restaurant kitchen may be used as a commissary provided that:

A. The restaurant maintains an active business license to serve food to the public; and

B. The restaurant use shall be maintained as the principal use.

(ORD-26-0012 § 12, 2026)

21.51.226 Computer cafe.

The following conditions shall apply to computer, cyber, or internet cafes:

A. Computer games of an adult nature depicting "specified anatomical areas" or "specified sexual activities", as these terms are defined in Chapter 21.15 (Definitions), shall not be installed on computer terminals or played by customers unless the locational restrictions of Section 21.45.110 (Special development standards - adult entertainment) are complied with; and

B. If access to adult oriented web sites is allowed, a separate area, up to a maximum of twenty percent (20%) of computer terminals available for public rental, shall be set aside for adult viewing with the computers clearly marked as such and screened from view by minors. All other machines shall be marked prohibiting adult viewing.

(Ord. C-7961 § 3, 2004)

21.51.227 Home automobile repair.

Home automobile and motorcycle repair is an allowed accessory use in all residential districts provided:

A. **Ownership.** The automobiles or motorcycles repaired shall be limited to vehicles owned by the residents of the property, and shall be registered and licensed;

B. **Public Right-of-Way.** No automobiles or motorcycles shall be repaired on the public right-of-way;

C. **Inoperable Vehicles.** Neither inoperable automobiles or motorcycles shall be left overnight in a location that blocks access to required parking spaces;

D. **Paved Area Required.** Neither automobiles nor motorcycles shall be repaired on unpaved areas;

E. **Extent of Repair.** The automobile or motorcycle repair work shall be limited to minor repair (see Section 21.15.290);

F. **Noise.** Neither automobile nor motorcycle repair activities shall violate the City noise ordinance, Chapter 8.80 of the Municipal Code;

G. **Hours.** Neither automobile nor motorcycle repair activities shall be conducted between ten (10:00) p.m. and seven (7:00) a.m.;

H. **Wrecked or Disassembled Vehicles**. Neither wrecked nor disassembled automobiles or motorcycles shall be parked overnight on a residential property outside of a garage;

I. **Trucks.** Neither trucks nor related vehicles in excess of three-fourths (¾) ton carrying capacity shall be repaired at a residence.

(Ord. C-7032 § 49, 1992)

21.51.230 Childcare—Small and large family daycare homes.

Small family daycare homes are an allowed accessory use. Large family daycare homes are an allowed accessory use, provided:

A. The prime daycare provider shall reside in the residence;

B. The daycare provider shall obtain the required State licenses;

C. No sign shall be displayed other than those signs allowed for all residences as provided in Subsection 21.44.230.B and Table 44-2;

D. All required parking for the residential use shall be maintained as required for all residents in Sections 21.27.090 and 21.41.170; and

E. The use shall comply with all City noise regulations (Chapter 8.80).

Neither small nor large family daycare homes are home occupations regulated by Section 21.51.235.

(Ord. C-7032 § 37, 1992; Ord. C-6533 § 1 (part), 1988)

21.51.235 Home occupations.

A. Intent. A home occupation is intended for home enterprises that are incidental to the use of the dwelling unit and does not change the principal character or use of the dwelling. The home occupation shall be compatible with surrounding residential uses and not have characteristics associated with the use that would reduce the surrounding residents' enjoyment of their neigh-

borhood. As an ancillary activity to those uses permitted in the applicable residential zone in which the subject site is located, the following home-based businesses may be conducted at the site:

1. Professional Office Uses. A professional office use is a business whose principal product is information, management or design, including but not limited to, accounting, architecture, artist/talent management and promotion, brokerage, business/financial management, computer programming and software development, consulting, direct sales (incl. internet sales), credit/financial counseling, drafting and illustration, engineering, fashion design, interior decoration and design, legal services, marketing and advertising, property management, and writing and editing. The primary means of contact must be by phone, mail, or other electronic form of communication. A professional office use does not include research requiring the use of hazardous materials and equipment;

2. Instructional Services Uses. An instructional services use is a business whose principal purpose is to provide cognitive instruction or training, including but not limited to, academic tutoring, musical instrument lessons, dance lessons, sports training, or other similar physical performance training. The maximum number of students at any one time shall be limited to six (6);

3. Home Craft Uses. A home craft use is a business that results in a tangible product including but not limited to, dressmaking, furniture making, toy making and doll making. Additional uses include artistic products such as sculpting, painting, photography and other similar forms of creative works when such works are produced with the intent of gain or benefit for the participant or another person. Conducting a home craft use does not entitle the owner to sell articles manufactured on-site or in a residential zone.

4. Cottage Food Operations. A cottage food operation is an enterprise at a private home where low-risk food products are prepared or packaged for sale to consumers. A cottage food operation is subject to all State of California Health and Safety Code regulations (Cal. Gov't Code §51035: cottage food operations).

5. Microenterprise Home Kitchen Operation (MEHKO). A Microenterprise Home Kitchen Operation (MEHKO) is an enterprise at a private home where food products are prepared, served, or packaged for sale to consumers. A MEHKO is subject to all State of California Health and Safety Code regulations (California Health and Safety Code §113825).

B. Requirements. The following standards shall be complied with at all times:

A home occupation shall only be issued when all of the following requirements are met and maintained:

1. No person other than a resident of the dwelling unit shall be engaged or employed in the home occupation, and the number of residents engaged or employed in the home occupation shall not exceed two (2). A Microenterprise Home Kitchen Operation (MEHKO) is not subject to the employment limitations outlined in this section. Pursuant to California Health and Safety Code §113825, a MEHKO is limited to one full-time employee (up to 40 hours a week) or multiple employees whose total working hours combined do not exceed 40 hours per week (this does not include a family or household member);

2. No sign shall be displayed in a manner visible from the outside of the dwelling unit. Vehicles with signs identifying the home occupation shall be parked so that they cannot be seen from the public right-of-way;

3. No mechanical equipment shall be used except that which is necessarily, customarily, or ordinarily used for household or leisure purposes. Such equipment shall not generate noise higher than the noise standards established for the residential uses;

4. No toxic, explosive, flammable, combustible, corrosive, etiologic, radioactive or other restricted materials shall be used or stored on the site;

5. There shall be no outside operations, storage or display of materials or projects;

6. Total storage of materials or products used in the business shall not exceed one hundred twenty-eight (128) cubic feet. There shall be no excessive or unsightly storage of materials or supplies for purposes other than those permitted in the residential district in which it is located. A garage may not be used for operations of the business or storage of materials used in the business and must be maintained for parking of automobiles and similar type vehicles;

7. The residential appearance of the premises shall not be altered. Creation of a separate entrance to the dwelling or use of an existing entrance exclusively for the business shall not be permitted;

8. No process shall be used which is hazardous to public health, safety or welfare;

9. Visitors, customers or deliveries to the dwelling shall not exceed that which normally and reasonably occurs for a residence. Visitors and deliveries shall be limited to not more than two (2) business visitors an hour and eight (8) visitors a day, and not more than two (2) deliveries of products or materials a week. A Microenterprise Home Kitchen Operation (MEHKO) is not subject to the visitor limitations outlined in this section. Pursuant to the regulations found in California Health and Safety Code §113825, a MEHKO is permitted to serve up to 30 meals a day and up to 90 meals a week in a dine-in, delivery or pick-up configuration;

10. The home occupation shall not displace or block the use of parking spaces required for the residential use including any business storage in required garage parking areas;

11. No advertisement shall be placed in any media containing the address of the property;

12. Not more than two (2) vehicles shall be used in the business. Only one (1) vehicle may be commercially licensed;

13. When the person conducting the home occupation serves as an agent or intermediary between outside suppliers and outside customers, all articles, except for samples, shall be received, stored and sold directly to customers at an off-premises location;

14. The home occupation approval shall be valid only for the person to whom it was issued and shall be void when that person moves from the dwelling unit or discontinues the business.

C. Prohibited Home Occupation Uses. The following uses shall be prohibited as home occupations.

1. Ambulance service;
2. Appliance repair;
3. Automobile repair, parts, sales, upholstery, detailing, washing, service;
4. Beauty salons and barber shops;
5. Boardinghouse, bed and breakfast, hotel, time-share unit;
6. Carpentry, cabinet makers;
7. Ceramics (kiln or six (6) cubic feet or more);
8. Churches, religious instruction;
9. Contractor storage yards;
10. Food preparation (except cottage food operations [Cal. Gov't Code §51035; cottage food operations] and Microenterprise Home Kitchen Operations [MEHKOs] [California Health and Safety Code §113825]);
11. Gun sales (including internet) and repair;
12. Health clubs, gyms, dance studios, aerobic studios, massage;
13. Limousine or pedicab service;
14. Medical or dental office;
15. Mortician, hearse service;
16. Palm reading, fortunetelling;
17. Private clubs;
18. Religious services;
19. Restaurants, taverns;
20. Retail sales from site (except direct distribution and internet);
21. Skin care services;
22. Tow truck service;
23. Welding or machine operation;
24. Upholstery;

25. Veterinary uses (including care, grooming or boarding);

26. Any use that requires the use of toxic, explosive, flammable, combustible, corrosive, etiologic, radioactive or other restricted materials;

27. Any use that is hazardous to public health, safety or welfare;

28. Any use that changes the residential characteristic of the residence;

29. Other uses the Planning Administrator determines to be similar to those listed above, or which by their operation or nature are not incidental to or compatible with residential activities.

D. Any home occupation which becomes a nonconforming use as a result of revisions to applicable provisions of this Title shall either:

1. Be brought into legal conforming status; or

2. Be discontinued and removed within three (3) months of becoming a nonconforming use.

(ORD-26-0009 § 6, 2026)

Editor's note—Section 2 of ORD-12-0011, adopted June 12, 2012 deleted Table 51-2, Home Occupation Uses, in its entirety, which derived from: Ord. C-7607, § 14, 1999; and ORD-06-0044, § 1, 2006.

21.51.237 Live nude art drawing.

A. Live nude art drawing, or painting and/or classes offering such activity is allowed as an accessory use to a duly licensed art studio or art gallery provided:

1. Such activity shall not take place at a location that has been licensed by the City as an adult entertainment business.

2. No alcohol shall be consumed, sold, served or otherwise dispensed during live nude art drawing or painting classes.

B. The subject matter of this Section shall be reviewed by the Planning Commission five (5) years after the date of enactment.

(Ord. C-7961 § 4, 2004)

21.51.240 Manufacture of products sold on-site (commercial zones).

A. The manufacturing of products to be sold on-site in commercial zoning districts shall be clearly accessory to the retail use of the site.

B. No wholesale sales shall occur on the site.

C. Noise levels shall not exceed the City noise regulations set forth in Chapter 8.80 (Noise) of the Municipal Code.

D. The manufacturing process shall not produce pungent or disturbing odors other than those which might originate from a restaurant, retail bakery or similar use; noxious or disturbing air pollutants including smoke and dust; or electromagnetic disturbances.

(Ord. C-6533 § 1 (part), 1988)

21.51.243 Reserved.

Editor's note—ORD-18-0018 § 10, adopted July 10, 2018, repealed § 21.51.243 entitled "Massage therapy," which derived from: Ord. C-6895 § 24, 1991; and Ord. C-6595 § 27, 1989.

21.51.255 Outdoor display for sale of flowers, plants, fruits, and vegetables.

A. The outdoor display for sale of flowers, plants, fruits and vegetables shall occur only in conjunction with the sale of the same or related products in a retail store.

B. The display shall not obstruct pedestrian access and shall not occupy any required parking spaces.

(Ord. C-6533 § 1 (part), 1988)

21.51.260 Pool table.

A. A pool table is a permitted accessory use only in restaurants, taverns, private clubs and other commercial entertainment uses. It shall not be considered an accessory use in fast-food restaurants.

B. No more than three (3) pool tables shall be permitted in any one (1) use listed above.

(Ord. C-6533 § 1 (part), 1988)

21.51.265 Recycling containers.

Recycling containers shall be permitted as an accessory use to a grocery store. Such containers shall not obstruct pedestrian paths and shall not be located within required parking or landscape areas.

(Ord. C-6533 § 1 (part), 1988)

21.51.270 Room rental.

The conditions listed below shall apply to all room rentals. Any room rental use not conforming to these conditions shall be considered a boardinghouse, lodging house, hotel or motel, as applicable, and shall be subject to the requirements for that use.

A. The owner of the dwelling unit must live in the unit.

B. The rented room shall not contain more than three (3) plumbing facilities nor a kitchen. Such room shall not contain laundry facilities, a water heater or a wetbar-type sink.

C. The rented room shall not contain an independent exterior entrance.

D. The rented room may not be detached from the principal dwelling unit.

E. Not more than two (2) rooms shall be rented in a single dwelling unit.

(Ord. C-6533 § 1 (part), 1988)

21.51.275 Reserved.

Editor's note—Section 4 of ORD-19-0008 adopted Apr. 23, 2019, repealed § 21.51.275 entitled "Secondary housing units ("granny flats")," which derived from: ORD-17-0031 § 11, 2017; and Ord. C-6533 § 1 (part), 1988.

21.51.276 Accessory Dwelling Units.

An accessory dwelling unit ("ADU") is an allowed accessory use on a lot having only one detached single family dwelling (a "primary dwelling") and no other principal uses, or principal buildings or structures. An accessory dwelling unit shall have the provisions described in the definition of ADU

(Section 21.15.045 - Accessory Dwelling Unit). Permits for ADUs shall be considered ministerially, without discretionary review or a hearing, with the exception of projects falling under the categories listed in Sections 21.25.903.A and 21.25.903.B. Applications for ADUs in the Coastal Zone that are exempt from the coastal development permit requirement shall be processed according to Section 21.25.906. The Director of Development Services shall approve or deny an application for an ADU within one hundred twenty (120) days after receiving said application. Coastal development permits shall be processed according to 21.25.904. ADUs are subject to the following regulations:

A. Locations Allowed and Prohibited. Accessory dwelling units shall be allowed in the following locations, except that ADUs shall be prohibited unless fully conforming to the requirements of this Section:

1. The zoning districts in Table 31-1 where indicated as an allowable accessory use;

2. A Planned Development District (PD) or Specific Plan (SP), or subarea thereof, that allows residential use at single-family density, subject to the additional restrictions provided in this Section. The Zoning Administrator is authorized to determine if a PD or SP, or subarea thereof, allows for development of an ADU.

B. Categories of Accessory Dwelling Units. The City hereby provides for the permitting of two categories of accessory dwelling units, as follows:

1. Limited ADU. A Limited ADU is located in one of the zoning districts in Table 31-1 in which a Limited ADU is indicated as an allowable accessory use, or is located in a Planned Development District (PD) or Specific Plan (SP), or subarea thereof, that allows single-family but not multi-family residential use. A Limited ADU is created solely from the existing floor area of the primary dwelling or an accessory structure. No addition of floor area or expansion of building footprint is allowed when creating a Limited ADU. A Limited ADU is exempt from certain development standards, as provided by this Section; however, any future addition of floor area to a Limited ADU shall require compliance with the provisions of this Section for a Conforming ADU.

2. Conforming ADU. A Conforming ADU is located in one of the zoning districts in Table 31-1 in which a Conforming ADU is indicated as an allowable accessory use, or is located in a Planned Development District (PD) or Specific Plan (SP), or subarea thereof, that allows single-family residential use.

a. A Conforming ADU meets one of the following conditions:

i. Construction of new floor area is proposed to create or expand the ADU; or

ii. The lot is located in a permitted residential zoning district other than a single-family residential district, whether or not construction of new floor area is proposed.

b. For a lot where an additional principal dwelling is allowed, a Conforming ADU is not permitted, except that a Conforming ADU may be created through conversion of the

floor area of an existing attached or detached accessory structure, which may not be expanded, and such a Conforming ADU may not be created or converted from new or existing floor area of the primary dwelling.

C. Density. Accessory dwelling units developed pursuant to the requirements of this Section shall not be considered to cause the lot upon which the ADU is located to exceed the allowable density permitted for the lot. For lots not located in a single-family residential zoning district, addition of another principal dwelling unit to a lot is not permitted as long as an ADU is present.

D. Development Standards. An accessory dwelling unit shall conform to all development standards of the zone in which the property is located, including but not limited to, parking, height limits, setbacks, projections, lot coverage, landscape, open space, and floor area ratio (FAR), except as specifically provided by this Section, and shall be subject to the following standards, and the provisions of Tables 51.276-1 and 51.276-2:

1. Nonconforming Setbacks. An ADU may be located within an existing, permitted structure with non-conforming setbacks, provided that any new construction of floor area complies with the applicable setback standards. Conversion of an existing detached accessory structure with non-conforming setbacks may include a second floor, provided that any new construction complies with the applicable setback standards and the policies of the City of Long Beach Certified Local Coastal Program (LCP).

2. Relationship to Other Accessory structures. The gross floor area of an ADU shall not be counted toward the allowable size of accessory structures specified in Section 21.31.245.

3. Architecture, Design, and Site Planning. An ADU shall be subject to the following criteria for architecture, design, and site planning compatibility:

   a. Exterior modifications to a primary dwelling or accessory building, as well as the construction of a new attached ADU, shall be architecturally compatible with the primary dwelling, including the use of complimentary color palettes, exterior finishes, roof pitch, and other design standards as set forth in Chapter 21.31.

   b. Any garage door(s) shall be removed from a garage or other accessory structure that is converted to an ADU, and the opening shall be treated and finished to match the building per Subsection 21.51.276.D.3.a.

   c. Any window, door, or deck of a second story ADU shall utilize techniques to lessen views onto adjacent residential lots to preserve a reasonable level of privacy of adjacent residents. These techniques may include facing a unit entrance away from an interior property line, use of obscured glazing, window placement above eye level, or screening between properties.

   d. A second story ADU shall be designed to preserve public views of the beach, bay, ocean, or tidelands from public areas in the coastal zone. Techniques, including siting decks to maximize public views of the ocean and using visually permeable guardrails, may be utilized.

e. Where a driveway abuts an ADU, a landscape area with a depth between eighteen (18) to thirty-six (36) inches shall be provided for the entire width of the driveway, provided that:

i. The landscape area does not reduce the driveway length below the minimum required in this Section when it serves as the required parking; and

ii. Existing pedestrian paths and entrances to the ADU and primary dwelling are not negatively impacted, or can feasibly be relocated.

Table 51.276-1
Accessory Dwelling Unit Development Standards

		Limited ADU	Conforming ADU
Setbacks [a]			
Front Yard		N/A	Same as zoning district.
Side Yard		N/A	Same as zoning district, or 5 ft., whichever is less.
Rear Yard [b]	Attached ADU	N/A	Same as zoning district. [c]
	Detached ADU	N/A	5 ft. [c]
Building Height			
Height Limit		N/A	Same as zoning district, or 25 ft. and 2 stories, whichever is less. [d]
Lot Standards			
Number of ADUs Allowed		1 per lot with an existing single-family dwelling only. [e]	
Minimum Lot Size	Within the Coastal Zone	N/A	4,800 sq. ft.
	Outside the Coastal Zone	4,800 sq. ft.	
Minimum Lot Width		27 ft.	
Maximum Lot Coverage		N/A	Same as zoning district. [f]
Floor Area Ratio (FAR)		N/A	Same as zoning district. [f]
Minimum Usable Open Space		N/A	Equal to 30% of the gross floor area of the ADU [g], [h], [i]
Unit Size Requirements			
Maximum Unit Size		50% of GFA of the primary dwelling, or 800 sq. ft., whichever is less. [j]	
Minimum Unit Size [k]			
0 bedrooms		180 sq. ft. for all Limited ADUs	300 sq. ft.
1 bedroom			450 sq. ft.
2 bedrooms			750 sq. ft.

Abbreviations:

ft. = feet

sq. ft. = square feet

N/A = not applicable

GFA = Gross Floor Area, as defined in Section 21.15.1070

Notes:

(a) See Section 21.51.276.D.1 for existing legal nonconforming setbacks.

(b) The rear setback shall be measured to the centerline of the abutting alley, where such exists.

(c) For reverse corner lots, the rear yard setback shall be the same as the side yard setback.

(d) For sites in PD-11 (Rancho Estates Planned Development District), height is limited to 13 ft., 1 story.

(e) For a lot where an additional principal dwelling unit is allowed, a Conforming ADU is not permitted, except as provided in Section 21.51.276.B.2.b.

(f) The accessory dwelling unit's gross floor area shall be calculated in accordance with Section 21.15.1070, and shall be counted toward lot coverage and floor area ratio, and against usable open space.

(g) Percent of lot area per ADU, to be provided as private or common open space. Usable open space standards of Section 21.31.230 shall apply.

(h) The open space required for the ADU is in addition to the open space required by Table 31-2A for the primary dwelling.

(i) For a Conforming ADU, if the existing usable open space provided for the primary dwelling is nonconforming, additional usable open space shall be provided for the primary dwelling to conform with the open space requirements of Section 21.31.230 and Table 31-2A.

(j) For a site with a primary dwelling of less than 1,280 sq. ft., an ADU up to 640 sq. ft. is permitted.

(k) The minimum unit size requirements do not establish any exceptions to the maximum unit size allowed.

(l) The development standards included in the table do not apply in the coastal zone.

Table 51.276-2
Required Parking for Limited and Conforming Accessory Dwelling Units and Primary Dwellings

Parking spaces required	
ADU[a, b]	Primary dwelling
1	Same as existing number of spaces

Notes:

(a) The parking required for an ADU is in addition to that required for the primary dwelling.

(b) An ADU shall be exempt from the parking requirements if any of the following criteria are met:

i. The ADU is located within one-half (½) mile of public transit.

ii. The ADU is located within an architecturally and historically significant historic district.

iii. The ADU is part of the proposed or existing primary residence or an existing accessory structure.

iv. When there is a car share vehicle located within one block of the ADU.

E. Other Provisions.

1. Owner Occupants, Sales, Rentals, and Covenants. The following requirements shall apply to all accessory dwelling units:

a. The owner of the property shall reside either in the primary dwelling or the accessory dwelling unit, unless both the primary dwelling unit and the accessory dwelling unit are rented to the same tenant and such tenant is prohibited in writing by lease or other written instrument from subleasing or otherwise renting the primary dwelling unit or ADU to any other person or entity.

b. The accessory dwelling unit shall not be sold separately from the primary dwelling.

c. All required on-site parking for the property shall remain available for the residents of the primary dwelling and accessory dwelling unit, and shall not be allocated to or used by any other person or entity, as required by Section 21.41.209.

d. The accessory dwelling unit or the primary dwelling may be rented. All rentals shall be for terms of longer than thirty (30) days.

e. The accessory dwelling unit shall be removed at the expense of the property owner upon violation of Section 21.51.276, or upon cessation of the primary land use as a single-family dwelling, including, but not limited to, addition of another principal dwelling unit, or upon a request by any government agency to remove or vacate the structure due to coastal hazards.

f. Prior to the issuance of a building permit for the ADU, the owner/applicant shall record a deed restriction in a form approved by the City that restricts the size and attributes of the ADU consistent with this Section, and requires the above restrictions.

2. Construction of ADU with New or Rebuilt Primary Dwelling. Construction of an ADU in conjunction with construction of a new primary dwelling (including situations in which the primary dwelling is demolished or rebuilt as defined in this Title) is permitted, subject to the applicable provisions of this Section and all other applicable laws, codes, and regulations. When the primary dwelling is demolished or rebuilt, any nonconformities in any existing accessory structures shall be corrected prior to the creation of an ADU on the property.

3. Rebuilding of Existing Accessory Structure for Conversion. An existing garage or other accessory structure that is converted to an ADU, or above which a new ADU is constructed, may be rebuilt as necessary to comply with building, fire, and other life safety codes without loss of rights to nonconforming setbacks.

4. Conversion of Nonconforming Second Dwelling Unit to ADU. A nonconforming dwelling unit on a property with no more than two existing dwelling units may be converted to a Conforming ADU, subject to the provisions of this Section and the following:

a. The converted unit may be exempt from the maximum ADU size limits, provided that:

i. The unit to be converted to an ADU has a floor area less than the other dwelling unit, which shall become the primary dwelling; and

ii. The unit to be converted to an ADU is not larger than 1,200 sq. ft.

b. The property shall be located in a single-family zoning district, or shall be located in an R-2, R-3, or R-4 zoning district and shall have insufficient lot size for more than one dwelling to be permitted per Tables 31-2A or 31-2B; and

c. Any existing parking (whether garage, carport, or open) for both units shall be retained, and may be rebuilt and reconfigured as necessary to comply with building codes, and may be modified to be made more conforming to the requirements of the Zoning Regulations.

5. Nonconformity with Loss of Primary Dwelling. In the event that the primary dwelling is destroyed, abandoned, demolished, or otherwise lost, the accessory dwelling unit shall become a nonconforming use, subject to the provisions of Chapter 21.27 (Nonconformities), and shall not be expanded. This nonconformity may be remedied by the re-establishment of a primary dwelling on the property; or by conversion of the ADU to a primary dwelling, subject to all applicable codes, laws, and regulations for a primary dwelling.

6. Unpermitted Structures. Any structure that is described by Section 21.27.030 shall not be converted or otherwise used in the creation or expansion of an accessory dwelling unit if it cannot first be brought into legal conforming status under the provisions of this Title.

F. Severability Clause. If any provision, clause or section of this Ordinance or the application thereof to any person or circumstance is held to be unconstitutional or to be otherwise invalid by any court of competent jurisdiction, such invalidity shall not affect any other provision, clause, or section, or application, and to this end the provisions, clauses and sections of this Ordinance are declared to be severable.

(ORD-21-0028 § 7, 2021; ORD-19-0028 § 22, 2019; ORD-19-0008 § 3, 2019; ORD-17-0031 § 20, 2017)

21.51.278 Safe parking site.

See Special Development Standards 21.45.163 for Safe Parking Sites.

(ORD-20-0026 § 20, 2020)

21.51.280 Shoe-shine parlor.

A shoe-shine parlor is permitted as an accessory use to an existing commercial use on the same site. Shoe-shine parlors shall be located only inside buildings.

(Ord. C-6533 § 1 (part), 1988)

21.51.285 Solar collectors.

Solar energy collectors are permitted as accessory uses in all districts.

(Ord. C-6533 § 1 (part), 1988)

21.51.290 Storage of materials.

Materials clearly related to the principal use may be stored indoors on-site subject to the following conditions:

A. All materials shall be stored in a fully enclosed building, unless otherwise specified by this Title.

B. Only inventories, supplies and equipment necessary to support the principal use shall be stored.

C. For an existing residence, chattels may be stored on the property subject to the following conditions:

1. The storage complies to the provisions of Section 8.76.010 (Property maintenance);

2. The storage shall not be utilized for a commercial purpose; and

3. Chattels shall not be stored on top of any vehicle in areas visible to the public rights-of-way.

(Ord. C-6533 § 1 (part), 1988)

21.51.292 Towing.

Towing shall be allowed as an accessory use to minor and general auto repair uses upon the following conditions:

A. No vehicles are towed to the site which are not intended to be repaired on the site;

B. No vehicles are impounded on the site; and

C. Approval for the towing service is granted by the Police Department.

(Ord. C-7032 § 50, 1992)

21.51.294 Unattended Donation Box (UDB).

An Unattended Donation Box (UDB) is permitted only as an accessory use to an existing nonresidential activity on the same site provided it meets the following standards:

A. Permit Required.

1. An UDB permit is required for an unattended donation box (UDB). A permit is not required for UDBs that are enclosed within a principal building or are accessory to a principal activity on a property owned or leased by the box operator. However, all UDBs shall meet all other requirements of Chapter 21.51.294.

2. The UDB permit shall require the property owner's approval.

3. The UDB permit applicant shall be the UDB operator and the permit may not be transferred, conveyed or otherwise assigned to another person or entity.

4. The UDB permit applicant shall have an active City Business License.

B. Location.

1. An UDB shall not be located on a vacant lot.

2. No UDB shall be located within one thousand feet (1,000') from any other UDB.

3. A development site located on one (1) or more lot shall be limited to one (1) UDB on the site.

4. No UDB shall be located within required areas of landscaping, parking spaces, drive aisles, walkways, handicapped accessibility routes, building ingress and egress, easements, trash enclosures or waste disposal areas or the public right-of-way.

5. UDBs shall have a minimum setback of twenty (20) feet from the public right-of-way and five feet (5') from any property line, or meet the setback requirements of the underlying zone, whichever is greater.

6. The donation/collection area shall have a clear line of site from the principal building located on the property or the public right-of-way.

7. UDBs shall be located within ten feet (10') of a dusk to dawn photocell-controlled light source of at least one foot (1') candle. If security is determined to be an issue, a greater foot candle may be utilized, provided lights are directed and shielded to prevent light and glare from intruding onto adjacent sites.

C. Standards.

1. UDBs shall be constructed of durable and waterproof materials.

2. UDBs shall be placed on a paved surface.

3. Maximum height is six feet (6').

4. Maximum floor area is twenty-five square feet (25 sq. ft.) (25 x 6 = 150 cubic feet).

5. UDBs shall have a tamper-resistant locking mechanism for all collection openings.

D. Signage.

1. UDBs shall have contact information, including the name, address, email and phone number of both the operator and parcel owner/owner agent, posted on the box in a conspicuous location.

2. UDBs shall identify the type of material that may be deposited and a pick-up schedule shall be posted on the box.

3. If applicable, the UDB shall identify the charitable cause that will benefit from the donations and the Federal Tax identification number of the nonprofit organization.

4. The property containing the UDB shall display a sign not to exceed ten square feet (10 sq. ft.) with text in at least two-inch (2") typeface stating that no material shall be left outside of the UDB. This sign shall be placed in a visually conspicuous location within a radius of twenty feet (20') from the UDB.

E. Maintenance.

1. The site shall be maintained to be free of blight, including but not limited to donation/collection overflow, litter, debris and dumped material.

2. The UDB shall be maintained, free of damage, holes, rust, graffiti and be in good working order.

3. The UDB shall be serviced per a schedule posted on the UDB. This servicing shall include the removal of donated/collected material and abatement of any blight. Additional pick-ups may be required if overflow or blight conditions are found to exist.

4. Hours of servicing UDBs shall be between 7:00 a.m. and 7:00 p.m., Monday through Friday, and between 10:00 a.m. and 6:00 p.m. on weekends.

5. The UDB operator shall maintain an active email address and a 24-hour telephone service with recording capability for the public to register complaints. This contact information shall be posted on the UDB.

F. Penalty for violation.

If an UDB is found to be in violation of Chapter 21.51.294, and the operator does not remedy the violation upon notification from the City, the UDB can be deemed a public nuisance in accordance with Sections 21.10.080 or 21.10.090 of this Code or an Administrative Citation and penalty may be assessed in accordance with Chapter 9.65 of this Code.

(ORD-18-0003(Emerg.) § 4, 2018)

21.51.295 Vending machines.

Vending machines shall be permitted as an accessory use to existing retail sales on a site. Such machines shall not obstruct pedestrian access and shall not be located within any required parking or landscape area.

(Ord. C-6533 § 1 (part), 1988)

CHAPTER 21.52 CONDITIONAL USES

21.52.010 Purpose.

The City recognizes that certain types of land use, due to the nature of the use, require individual review by the Planning Commission to determine whether the type of use proposed, or the location of that use, is compatible with, or through the imposition of reasonable conditions, can be made compatible with surrounding uses. This Chapter establishes specific conditions which shall apply to uses permitted by a permit.

(Ord. C-6533 § 1 (part), 1988)

21.52.030 Massage establishments.

The following conditions shall apply to massage establishments indicated in Table 32-1 where massage is the primary use:

A. For new massage establishments, the proposed location for the massage establishment must not be fewer than seven hundred fifty (750) feet from another massage establishment as measured from the property lines. For existing massage establishments that are located within seven hundred fifty

(750) feet of another massage establishment at the time this Section is enacted, those massage establishments are not required to relocate but are subject to the provisions of Chapter 5.58 and Title 21 of the Long Beach Municipal Code, and any other applicable federal, state and local law.

B. No massage establishment located in a building or structure with exterior windows fronting a public street, highway, walkway, or parking area shall block visibility into the interior reception and waiting area through the use of curtains, closed blinds, tints, or any other material that obstructs or substantially darkens the view into the premises at any time. The interior of the business shall be plainly visible from the exterior of the business by passing vehicles and pedestrians.

C. A massage establishment shall post, near the public entrance of the establishment or in another conspicuous place in clear view of the public and employees where similar notices are customarily posted, a notice sized at least 8.5 inches by 11 inches with a minimum of 16-point font stating as follows:

> If you or someone you know is being forced to engage in any activity and cannot leave —whether it is commercial sex, housework, farm work, construction, factory, retail, or restaurant work, or any other activity — call the National Human Trafficking Resource Center at 1-888-373-7888 or the California Coalition to Abolish Slavery and Trafficking (CAST) at 1-888-KEY-2-FRE(EDOM) or 1-888-539-2373 to access help and services.

(ORD-18-0018 § 8, 2018)

DIVISION I.

GENERAL PROVISIONS

21.52.100 General provisions.

The uses listed in Chapters 21.31 through 21.36 as conditional uses (C) or administrative uses (AP) or identified as administrative uses in Chapter 21.25, Division IV, shall be required to comply with the conditions listed in Division II of this Chapter. Upon granting a conditional or an administrative use permit, the hearing body shall impose the conditions outlined in this Chapter for the specified use unless those conditions are waived with written findings. The hearing body may impose additional conditions that are deemed reasonable and necessary in granting the permit. If no conditions are contained in this Chapter, the hearing body may impose conditions as necessary to implement the permit.

(Ord. C-7032 § 39, 1992; Ord. C-6533 § 1 (part), 1988)

DIVISION II.

SPECIAL CONDITIONS FOR CONDITIONAL AND ADMINISTRATIVE USE PERMITS

21.52.200 Conditional and administrative use development standards.

This Division contains the required conditions for specified conditional and administrative use permits.

(Ord. C-7032 § 41, 1992: Ord. C-6533 § 1 (part), 1988)

21.52.200.1 Alcohol exemption permit.

The following alcoholic beverage sales may be exempted from the conditional use permit requirement:

A. Restaurants with alcoholic beverage service only with meals. This generally means any use with a fixed bar is not exempt. A service bar is not considered a fixed bar. A sushi bar, where alcoholic beverages are served at the same bar where meals are served, is considered serving alcoholic beverages only with meal service. A cocktail lounge without a bar, but with primarily service of only hors d'oeuvres and alcoholic beverages is not exempt. Any restaurant with more than thirty percent (30%) of gross sales consisting of alcoholic beverages shall lose its exemption and be required to obtain a conditional use permit to continue to sell alcohol.

B. Florist with accessory sale of alcoholic beverages.

C. Existing legal, nonconforming uses.

(ORD-18-0025 § 15, 2018)

21.52.201 Alcoholic beverage sales uses.

The following conditions shall apply to all alcoholic beverage sales uses requiring a conditional use permit:

A. The existing number of parking spaces, or the number of parking spaces normally required by Section 21.41.160, whichever is less, shall be maintained, except as provided by Section 21.41.175.

B. The operator of the use shall provide night lighting and other security measures to the satisfaction of the Chief of Police;

C. The operator of the use shall prevent loitering or other activity in the parking lot that would be a nuisance to adjacent uses and/or residential neighborhoods;

D. The use shall not be in a reporting district with more than the recommended maximum concentration of the applicable on or off-premises sales use, as recommended by the State of California Alcoholic Beverage Control Board, nor with a high crime rate as reported by the Long Beach Police Department, except: (1) locations in the greater downtown area; or (2) stores of more than twenty thousand (20,000) square feet floor area, and also providing fresh fruit, vegetables and meat, in addition to canned goods; and

E. The use shall not be located within five hundred feet (500') of a public school, or public park, except: (1) locations in the greater downtown area; or (2) stores of more than twenty thousand (20,000) square feet of floor area, and also providing fresh fruit, vegetables and meat in addition to canned goods.

(ORD-24-0033 § 26, 2024; Ord. C-7032 § 42, 1992; Ord. C-6533 § 1 (part), 1988)

21.52.203 Arcade.

The following conditions shall apply to arcades:

A. The site shall not be located within five hundred feet (500′) of a residential district or a public school; and

B. The operator shall demonstrate an ability to prevent problems related to potential noise, litter, loitering, crowd control and parking.

(Ord. C-7881 § 3, 2003: Ord. C-6533 § 1 (part), 1988)

21.52.204 Reserved.

Editor's note—ORD-18-0025 § 1, adopted Oct. 2, 2018, repealed § 21.52.204 entitled "Artist's studio with residence," which derived from: Ord. C-7729 § 9, 2001; and Ord. C-7032 § 51, 1992.

21.52.206 Automobile related services.

The following conditions shall apply to auto repair shops, service stations, car washes, auto upholstery shops, auto parts and tire sales, camper installation businesses, van conversion businesses and the like:

A. In the CB district, such uses shall be limited to locations inside parking structures;

B. In the CR and CO zones, conditional use permits shall be limited to the expansion of existing nonconforming uses;

C. Automobile service station uses shall be limited to: retail sales of fuel, oil and small vehicle parts;

D. The proposed use shall not intrude into a concentration of retail uses and shall not impede pedestrian circulation between retail uses;

E. The proposed use shall not create unreasonable obstructions to traffic circulation around or near the site;

F. No curb cuts shall be permitted within forty feet (40′) of any public roadway intersection;

G. No vehicles may be stored at the site for purposes of sale, unless the use is also a vehicle sales lot or for the use as parts for vehicles under repair; and

H. The site shall comply with all applicable development standards for open storage and repair uses specified in Chapter 21.45, "Special Development Standards".

(Ord. C-6533 § 1 (part), 1988)

21.52.208 Bank, credit union, savings and loan.

The following conditions shall apply to a bank, credit union, or savings and loan located in the CNP (commercial neighborhood pedestrian oriented) zone:

A. The project must comply with Section 21.32.230, "Design of Buildings".

B. Drive-thru windows or drive-thru automated teller machines are prohibited.

C. No new curb cuts shall be permitted for a new or existing bank, credit union, or savings and loan in local coastal planning area D (Second Street, between Livingston and Bayshore).

D. Interior and exterior lighting, window displays, and other architectural features shall be included in the building street frontages to provide pedestrian interest during nonoperational hours.

E. Projects in local coastal planning area D (Second Street, between Livingston and Bayshore) that qualify for the one-half (1/2) rate parking standard pursuant to Subsection 21.41.226.A shall make their parking facilities available for public parking during nonoperational hours.

(Ord. C-7777 § 1, 2001; Ord. C-7729 § 13, 2001)

21.52.209 Bed and breakfast inn.

The following conditions shall apply to bed and breakfast inns:

A. The use shall be allowed only in older residential structures which are recognized as architecturally, historically or culturally significant, and which, through renovation and use as a bed and breakfast inn, will contribute significantly to the ambiance, character or economic revitalization of a neighborhood;

B. Meals shall be served to registered guests only. No cooking facilities shall be permitted in guestrooms;

C. The property owners shall live at the inn or on an adjoining property;

D. Only short-term lodging may be provided. Monthly rentals shall be prohibited;

E. No receptions, private parties or activities for which a fee is paid shall be permitted;

F. A City business license shall be obtained as required by law. Two (2) parking spaces shall be provided for the operator plus one (1) space for each guestroom; and

G. Guest parking may be provided either on-site or along the curb abutting the lot. Tandem parking is permitted provided not more than two (2) cars are parked in a tandem arrangement.

(Ord. C-6533 § 1 (part), 1988)

21.52.209.5 Caretakers' residence.

The following conditions shall apply to administrative use permits for caretakers' residences:

A. The living area shall not exceed twenty-five percent (25%) of the total floor area;

B. Due to the lack of typical residential amenities in nonresidential zones, and potential hazardous materials, no one under the age of eighteen (18) shall be allowed to live in the residence.

(Ord. C-7032 § 52, 1992)

21.52.210 Reserved.

Editor's note—ORD-11-0011 § 9, adopted June 7, 2011, repealed § 21.52.210, entitled "Cellular and personal communication services (with monopoles)", which derived from: Ord. C-6684 § 7, 1990; Ord. C-7399 § 14, 1996; and Ord. C-7500 § 18, 1997.

21.52.211 Cemeteries, mortuaries, and crematoriums.

A. The following conditions shall apply to cemeteries:

1. The use shall be buffered visually from residential uses and districts; and

2. The complete master plan, including future expansion, shall be submitted for site plan review, and specific building requests shall be indicated on the master site plan.

B. The following conditions shall apply to mortuaries:

1. Parking for viewing, ceremonial and other similar uses within the mortuary shall be calculated using the parking standard contained in Section 21.41, Table 41-1C, Public Assembly; and

2. Site plan shall provide at least one (1) parking space on-site for loading purposes, either an enclosed parking space or under a porte cochere, regardless of the number of parking spaces required for assembly purposes.

C. The following conditions shall apply to crematoriums:

1. Crematoriums can be operated as stand-alone uses only within the IM or IG zone, and can be operated as accessory uses to a permitted mortuary or cemetery use;

2. In any instance, any new cremation operating unit(s) and emissions control systems shall be located a minimum of six hundred feet (600') from any residential zoning district or existing school.

(ORD-13-0022, § 1, 2013; Ord. C-6533 § 1 (part), 1988)

21.52.212 Check cashing, pay day loans, car title loans, signature loans, and other financial services.

The following conditions shall apply to check cashing, pay day loans, car title loans, signature loans, and other financial services businesses:

A. A Conditional Use Permit shall be required for check cashing, pay day loan, car title loan, and signature loan businesses. Alternative or other financial services are also required to obtain a Conditional Use Permit at the discretion of the Zoning Administrator.

B. Check cashing, pay day loans, car title loans, signature loans and other financial service businesses as defined by the Long Beach Municipal Code shall not be located within:

1. A one thousand three hundred twenty (1,320) foot radius of an approved check cashing, pay day loan, car title loan, signature loan, or other financial service business.

2. The CNA, CNP, CNR, PD-6, PD-25, PD-29 or PD-30 or any industrial zoning districts. This includes other financial services and alternative types of lending services at the discretion of the Zoning Administrator.

C. Windows shall not be obscured by placement of signs, dark window tinting, shelving, racks or similar obstructions.

D. Exterior phones, security bars and roll up doors shall be prohibited.

E. All fees and regulations associated with a loan or financial transaction shall be displayed near the cashier/checkstand and provided to the customer upon checkout.

F. The hours of operation shall be stated in the application and shall be subject to review.

G. Special Development Standards for check cashing, pay day loan, car title loan, signature loan, and other financial services found in Section 21.45.116 shall also apply.

(ORD-13-0018, § 2, 2013; Ord. C-7663 § 40, 1999)

21.52.213 Reserved.

Editor's note—ORD-18-0030, § 16, Dec. 11, 2018, repealed § 21.52.213, entitled "Churches and other places designed and intended primarily for religious worship," which derived from: ORD-07-0044 § 2, 2007; and Ord. C-6533 § 1 (part), 1988).

21.52.216 Collection center for recyclables.

The following conditions shall apply to collection centers for recyclables:

A. The site shall be kept in a neat, sanitary and orderly condition;

B. An attendant shall be on the site at all times when the facility is open for collection;

C. All recyclable materials shall be stored in bins and shall not be visible to the public;

D. The operator shall establish a charge free, twenty-four (24) hour telephone number for complaints, and shall post that number on each bin in a manner clearly visible to the public;

E. Truck pick ups of recyclable materials shall be limited to the hours of eight (8:00) a.m. to eight (8:00) p.m.;

F. The operator shall use state of the art noise abatement technology and procedures and shall at no time violate the City noise ordinance;

G. The operator shall accept only California redeemable materials;

H. The operator shall utilize no processing activities including crushing, shredding, grinding, blowing and the like; and

I. The use shall not block or displace any parking spaces or landscaping that would be required if the site were developed under the regulations in place at the time of the hearing unless a standards variance is also granted.

(Ord. C-7040 § 3, 1992: Ord. C-6533 § 1 (part), 1988)

21.52.219 Commercial parking lot or structure—Nonresidential districts.

The following conditions shall apply to commercial parking lots or structures in nonresidential zoning districts:

A. The use shall be permitted only if no other reasonable alternative use of the site exists during the time period covered by the permit;

B. The use and design of the site shall not disrupt, impede or negatively affect pedestrian circulation, traffic circulation or public transportation;

C. The use and design of the site shall not disrupt, impede or negatively affect the concentration of high intensity activities; and

D. Attractive landscape buffering and screening shall be provided.

(Ord. C-6533 § 1 (part), 1988)

21.52.219.5 Commercial recreation uses.

The following conditions shall apply to commercial recreation uses:

A. The use is consistent with the intent of the park district, general plan, and any applicable specific plan; and

B. The use does not permanently remove or encroach upon more than five percent (5%) of any existing park open space which may be developed within the site coverage restrictions, and the use does not impede public access to the park; and

C. The use provides a needed public recreation service which otherwise would not be available to the public; and

D. The use cannot reasonably be located to provide comparable public recreation service on private land appropriately zoned for such use.

(Ord. C-7826 § 4, 2002)

21.52.219.7 Commercial storage/self-storage.

The following conditions shall apply to commercial storage/self-storage:

A. Commercial storage/self-storage shall not be permitted or located in an existing business or office park.

B. Commercial storage/self-storage shall only be permitted with a conditional use permit if the development site is impractical for industrial development due to such conditions as the shape or topography of the site, difficult vehicular access or close proximity to residential uses that would preclude industrial development uses.

C. Storage spaces shall not be used for manufacturing, retail or wholesale selling, office, other business or service use or human habitation.

D. Prefabricated shipping containers shall not be allowed to be on sites located within one thousand feet (1,000′) from any property zoned for residential use, unless located or screened so as to not be visible from a public street.

E. Building and roof design. The building and roof shall be designed to be compatible with surrounding development, especially nearby residential uses. Considerations include design elements that break up long, monotonous building and rooflines and elements that are compatible with the desired character of the zone.

F. Building materials. The materials used for buildings, roofs, fences and other structures shall be compatible with the desired character of the zone and shall be visually pleasing, especially near residential uses.

G. Street facades. The design and layout of the street side of the site shall provide a varied and interesting facade. Considerations include the use of setbacks, building placement, roof design, variations in building walls, fencing, other structural elements, and landscaping. Access doors to individual storage units shall be located within a building or shall be screened from adjacent property or public rights-of-way.

H. Landscaping. The landscaping on the site shall be abundant and shall provide an appropriate transition from public to private spaces, separate and buffer the buildings from other uses, and provide visual relief from stark, linear building walls.

I. Fencing. Any proposed fencing shall be designed to be compatible with the desired character of the area and is especially sensitive to abutting residential uses. Use of rolled razor wire is prohibited adjacent to residential zones.

J. Lighting. Exterior lighting shall not intrude on surrounding properties.

K. Noise. The hours of operation and access to the storage units shall be limited to seven (7:00) a.m. to seven (7:00) p.m. Monday through Friday and nine (9:00) a.m. to five (5:00) p.m. on Saturday, Sunday and holidays. To further limit noise impacts, metal roll up doors shall be lubricated and maintained on a regular monthly basis.

L. Security. Prior to the issuance of building permits, the project shall submit a security plan that will be subject to the review and approval of the Police Department.

M. Loading. Provide adequate loading and unloading areas outside of fire lanes.

(Ord. C-7904 § 5, 2004)

21.52.219.7.5 Commissary (standalone).

See Special Development Standards in Section 21.45.125.

(ORD-26-0012 § 13, 2026)

21.52.219.8 Community assembly uses.

Community assembly uses shall be located, developed, and operated in compliance with the following standards:

A. In a residential zone:

1. The proposed use may consist only of an expansion of an existing facility on the site or on the abutting site; and

2. The site shall be limited to forty thousand (40,000) square feet in size;

3. A long-range development plan consistent with the requirements of Section 21.34.020 shall be submitted for Planning Commission review and approval for any new or expanded use on any site larger than forty thousand (40,000) square feet. New construction and additions with five thousand (5,000) square feet of floor area or more must be consistent with the long-range plan.

B. Any proposed addition or new construction shall conform to the development standards required for principal uses within the district.

C. Any new construction or additions with five thousand (5,000) square feet of floor area or more shall be subject to site plan review pursuant to Chapter 21.25, Division V.

D. A buffer at least twenty (20) feet in width shall be provided adjacent to the boundary of any residential zone or property line of any residential use. This buffer area may be used for parking or landscaping but shall not be used for structures or outside activities. The minimum buffer requirement may be reduced subject to the review and approval of a Conditional Use Permit pursuant to Chapter 21.25, Division II, as long as the reduced buffer maintains the minimum setback requirement of the district in which the facility is located. Parking areas shall be screened consistent with the requirements of Chapter 21.42.

E. Outdoor areas used for recreation, meetings, services or other activities involving groups of persons shall be at least fifty (50) feet from the boundary of any residential zone or property line of any residential use.

F. Parking shall be provided in accordance with Chapter 21.41.

G. To ensure compliance with the Federal Religious Land Use and Institutionalized Persons Act of 2000 (RLUIPA), the Planning Commission or the Zoning Administrator shall have the authority to grant exceptions and waivers to the requirements of this Code when necessary to accommodate religious assembly uses.

1. A request for an exception or waiver shall be submitted and processed in the same manner as an application for an Administrative Use Permit consistent with the requirements of Chapter 21.25, Division IV, Administrative Use Permits.

2. If necessary to reach a determination on the request for exception or waiver, the Zoning Administrator may request further information from the applicant, specifying in detail what information is required.

3. Findings required. The following findings must be analyzed, made and adopted before any action is taken to approve or deny a request for a modification or waiver and must be incorporated into the record of the proceeding relating to such approval or denial:

   a. The requested exception or waiver will not impose an undue financial or administrative burden on the City.

   b. The requested exception or waiver will not require a fundamental alteration of the zoning or building laws, policies and/or procedures of the City.

   c. There are no alternatives to the requested waiver or modification that could provide an equivalent level of function related to religious worship with less potential detriment to surrounding owners and occupants or to the general public.

   d. That the conditions imposed, if any, are necessary to further a compelling public interest and represent the least restrictive means of furthering that interest.

   e. That denial of the requested exception or waiver would impose a substantial burden on religious worship or would conflict with any State or federal statute.

   f. For religious assembly uses located in the coastal zone, a request for reasonable accommodation under this Section shall be approved by the City if it is consistent with all of the applicable provisions of this Division, and the certified Local Coastal Program. Where a request for a modification or waiver is not consistent with the certified Local Coastal Program, the City may waive compliance with an otherwise applicable provision of the Local Coastal Program and approve the request for reasonable accommodation if the City finds that the request is consistent, to the maximum extent feasible, with the certified Local Coastal Program.

4. Conditions of approval. In approving an exception or waiver to accommodate religious assembly use, the decision-maker may impose any conditions deemed necessary to:

   a. Ensure that the proposal conforms in all significant respects with the General Plan and with any other applicable plans or policies adopted by the City Council;

   b. Achieve the general purposes of this Section or the specific purposes of the zoning district in which the project is located;

   c. Achieve the findings for an exception or waiver granted; or

   d. Mitigate any potentially significant impacts identified as a result of review conducted in compliance with the California Environmental Quality Act.

5. Exceptions or waivers approved pursuant to this section may be conditioned to provide for rescission or automatic expiration based on a change of occupancy or other relevant change in circumstance. To ensure this, the property owner shall record a covenant demonstrating that the improvement with which the exception or waiver is associated shall be removed or modified to comply with City regulations at the expense of the property owner when said circumstance or occupancy changes.

6. Appeals. The applicant or any aggrieved party may appeal decisions pursuant to this section or any conditions or limitations imposed by the Zoning Administrator.

   a. All appeals shall contain a statement of the grounds for the appeal.

   b. Appeals shall be to the Planning Commission, in accordance with Division V of Chapter 21.21 - Administrative Procedures.

(ORD-18-0030 § 14, 2018)

21.52.220 Community correctional reentry centers.

A. A complete application for a community correctional reentry center in an industrial zone shall include adequate evidence that the applicant has conducted a preapplication meeting for surrounding property owners and occupants. The applicant shall provide at least ten (10) days' notice of a preapplication meeting to all owners and occupants of real property within one thousand five hundred feet (1,500') of the real property which is the subject of the application, all neighborhood associations adjacent to, or within the vicinity of, the proposed use, any surrounding business association and the City's neighborhood resource center. The applicant shall provide proof of such notice and meeting through the use of certified mail and returned receipts issued by the United States Postal Service.

B. The following conditions shall apply to community correctional reentry centers in the industrial zoning districts:

1. Such uses shall provide educational and vocational training primarily focused on industrial employment.

2. Such uses shall provide short-term lodging not to exceed one hundred twenty (120) days per inmate/trainee.

3. Counseling and job placement services shall be provided for inmates/trainees of the facility only.

4. The use shall comply with all general conditions of special group residences, as set forth at Section 21.52.271 of this Chapter; provided, however, no such use, regardless of the size of the parcel housing such uses shall exceed fifty (50) beds and/or fifty (50) inmates/trainees at any given time.

5. The operator of the use shall only accept inmates/trainees who voluntarily apply for transfer to the community correctional reentry center.

6. No reentry center operator shall accept any inmate/trainee currently serving a sentence for conviction of any offense described in subdivision (c) of Penal Code Section 667.5 or subdivision (c) of Penal Code Section 1192.7, excluding the offense of burglary.

7. No reentry center operator shall accept any inmate/trainee who has more than one hundred twenty (120) days left to serve in a correctional facility.

8. No reentry center operator shall accept any inmate/trainee that has been convicted of an escape pursuant to Section 4532 of the Penal Code.

9. The facility shall be staffed twenty-four (24) hours a day, seven (7) days a week. A State parole agent shall be assigned to the site to monitor the inmates' activities. No inmate of the facility shall be permitted to utilize a private vehicle unless expressly authorized to do so by the California Department of Corrections pursuant to its rules and procedures governing such use. Any change in operations must be reviewed and approved by both the State and City prior to implementation of such change.

(Ord. C-7392 § 3, 1996)

21.52.220.5 Computer arcade.

The following conditions shall apply to computer arcades:

A. Hours of operation shall be limited to between eight (8:00) a.m. to twelve o'clock (12:00) midnight. The Planning Commission may consider extended hours of operation based on proximity to residential uses; and

B. The operator shall demonstrate an ability to prevent problems related to potential noise, litter, loitering, crowd control and parking, including, but not limited to, the provision of a uniformed security guard at the site to the satisfaction of the Chief of Police if the Chief of Police determines it to be necessary due to increased police activity or calls for service at the site; and

C. Windows shall not be obscured by placement of signs, dark window tinting, shelving, racks or similar obstructions; and

D. Maximum number of machines available for public rental shall not exceed one (1) per thirty-five (35) square feet of net floor area; and

E. Computer games of an adult nature depicting "specified anatomical areas" or "specified sexual activities", as these terms are defined in Chapter 21.15 (Definitions), shall not be installed on computer terminals or played by customers unless the locational restrictions of Section 21.45.110 (Special development standards - adult entertainment) are complied with; and

F. If access to adult oriented web sites is allowed, a separate area, up to a maximum of twenty percent (20%) of computer terminals available for public rental, shall be set aside for adult viewing with the computers clearly marked as such and screened from view by minors. All other machines shall be marked prohibiting adult viewing;

G. Provide interior lighting levels similar to commercial office standards during operating hours; and

H. There shall be at least one (1) adult employee, eighteen (18) years of age or older, for each twenty (20) computer terminals available for public rental, or fraction thereof; and

I. An interior waiting area for customers, at least five percent (5%) of the gross floor area in size, but not less than fifty (50) square feet, shall be provided near the entrance; and

J. Headphones shall be provided for each computer terminal, in lieu of open speakers, to control noise at the site; and

K. The operator shall provide parking at a ratio of one (1) space per 3.3 computer terminals or, when two (2) or more uses share a parking facility, demonstrate through a signed affidavit that the hours of their demand for parking do not overlap, or only partially overlap.

(Ord. C-7881 § 8, 2003)

21.52.221 Courtesy parking in residential districts.

The following conditions shall apply to courtesy parking in residential districts:

A. The proposed site shall adjoin, abut or be adjacent to a commercial district;

B. The parking lot shall extend not more than one hundred feet (100′) into the residential district; and

C. A six foot six inch (6′6″) solid fence or wall and a five foot (5′) wide landscaping buffer shall be provided along any property line abutting a residential use.

(Ord. C-6533 § 1 (part), 1988)

21.52.222 Diesel fuel sales.

The following conditions shall apply to diesel fuel sales, whether in conjunction with gasoline sales or not:

A. Diesel fuel sales shall only be permitted on designated truck routes.

B. A solid masonry wall not less than eight feet (8′) in height shall be provided where the site abuts, or is across an alley from, a residential district.

C. An on-site queuing lane no less than one hundred twenty feet (120′) shall be provided on-site for each pump dispensing diesel fuel.

D. A site circulation and queuing diagram prepared by a traffic engineer shall be submitted with the application demonstrating the feasibility of truck access to and from each pump dispensing diesel fuel.

E. Local streets may not be used for vehicular access to pumps dispensing diesel fuel.

F. No on-site idling shall be permitted for vehicles queuing for pumps dispensing diesel fuel.

G. No overnight parking or on-site maintenance of truck tractors or truck trailers shall be permitted.

H. No exterior telephones or security bars shall be permitted.

I. Hours of operation shall be established and shall be appropriate based on adjacent land uses.

(Ord. C-7663 § 41, 1999)

21.52.223 Electrical distribution station—Residential districts.

The following conditions shall apply to electrical distribution stations in residential districts:

A. The site shall be located on a major, secondary or minor highway;

B. The site shall be developed according to the height and yard requirements of the district in which the site is located;

C. The site shall be surrounded by a fence designed, treated and finished in a manner compatible with the adjacent residential uses. Such fence shall be placed behind the required landscaping along the street frontage. Fences up to twelve feet (12′) in height may be allowed in side and rear yard areas if appropriate and necessary for the individual site;

D. Landscaping equal to twice the requirement for a multifamily residential zone shall be provided; and

E. All equipment and operations shall comply with applicable City noise regulations as set forth in Chapter 8.80 (Noise) of the Municipal Code.

(Ord. C-6533 § 1 (part), 1988)

21.52.226 Electrical distribution substations—Nonresidential districts.

The following conditions shall apply to electrical distribution substations in nonresidential zoning districts:

A. All facilities shall be screened from public view by an attractive wall or fence.

(Ord. C-6533 § 1 (part), 1988)

21.52.229 Electronic message center signs.

In addition to the required findings for a conditional use permit (Section 21.25.206), the Planning Commission shall not approve a conditional use permit for an Electronic Message Center sign unless positive findings can be made for the following:

A. The proposed design of the electronic message center sign is complete and consistent within itself and is compatible in design with the architectural theme or character of the existing or proposed development it will serve and the community in which it will be located.

B. The establishment of the proposed electronic message center sign will not adversely affect the character, livability, or quality of life of any residential community it will be adjacent to or located in.

C. The electronic message center sign shall not constitute a hazard to the safe and efficient operation of vehicles upon a street or freeway.

D. The applicant has demonstrated that the proposed electronic message display surface is factory-certified as capable of complying with the brightness standards in Section 21.44.850.

(ORD-13-0014 § 20, 2013; Ord. C-7500 § 24, 1997)

21.52.231 Fast-food restaurants.

The following conditions shall apply to fast-food restaurants:

A. The site shall not adjoin or abut a residential use district;

B. The proposed site shall not interrupt or intrude into a concentration of retail uses and shall not impede pedestrian circulation between retail uses;

C. The use shall not constitute a nuisance to the area due to noise, litter, loitering, smoke or odor; and

D. Order board speakers shall be oriented and directed away from adjacent residential uses.

(Ord. C-6533 § 1 (part), 1988)

21.52.231.5 Fences in high crime districts.

The following conditions shall apply to fences which exceed three feet (3′) in the front yard of residential lots located in high crime areas:

A. The site shall be located in a "high crime" area (as defined by Section 21.15.1338);

B. The fence shall enclose an existing or proposed multifamily (three (3) or more units) residential structure or any residential use located in a multifamily (R-3 or R-4) zone;

C. The fence shall not exceed six feet six inches (6′6″) in height;

D. The fence design shall be open wrought iron or other metal pickets;

E. The fence shall allow emergency egress;

F. The fence design shall provide visitor, meter reader and emergency personnel access;

G. The front yard shall have approved landscaping;

H. The applicant shall restore any missing street trees; and

I. The fence shall have self-closing, self-locking gates.

(Ord. C-7247 § 34, 1994)

21.52.232 Fitness or health club, dance or karate studio and the like.

A. The use shall demonstrate adequate parking for peak demand.

B. The facility shall be limited to five thousand (5,000) square feet of gross usable floor area in neighborhood commercial zones (CNP, CNA and CNR).

(ORD-20-0025 § 10, 2020; ORD-18-0030 § 15, 2018; Ord. C-7047 § 33, 1992)

21.52.233 Handicapped and traditional senior citizen housing.

The following conditions shall apply to housing for the handicapped and for senior citizens:

A. In a residential zone, handicapped and senior citizen housing shall be limited to the density allowed in the underlying zone district multiplied by the number indicated in Table 52-1. In congregate care facilities, each bedroom with two (2) or fewer beds shall count as a dwelling unit in calculating density. In bedrooms with more than two (2) beds, each bed shall count as a unit. This shall be the maximum permitted density. The Planning Commission may require a lower density as the situation requires. In nonresidential zones, densities shall be limited to one (1) dwelling unit per two hundred (200) square feet of lot area;

B. Consideration of the conditional use permit shall address crime rate, scale and style of the proposed building in relation to other buildings within the immediate vicinity;

C. The applicant shall provide evidence that the use will remain as senior citizen or handicapped housing through deed restriction or other method suitable to the Planning Commission. In the case of senior citizen housing that is constructed for sale or rental of individual units, apartments or condominiums, the applicant shall provide proof that the proposed project is fully compliant with the provisions of California Civil Code Section 51.3 or otherwise provide proof that the provisions of Civil Code Section 51.3 are not applicable to the project. Failure to provide suitable proof and assurances to the Planning Commission will result in the denial of the density multiples provided for in Table 52-1;

D. The facility shall be designed with appropriate grab bars in all hallways and bathtubs and/or showers and with nonslip surfaces in bathtubs and/or showers. The designs shall conform to the specifications of the U.S. Department of Housing and Urban Development for the applicable use;

E. Each unit shall be equipped with an emergency signaling device to the on-site unit manager's office, if applicable, to the satisfaction of the Chief of Police;

F. Each facility shall provide not less than three hundred (300) square feet of common recreational space;

G. Each facility shall provide not less than one hundred fifty (150) square feet of usable open space per unit or room. Of the one hundred fifty (150) square feet, not less than fifty (50) square feet shall be private open space, and the remainder may be common open space in addition to the three hundred (300) square feet required above;

H. The facility shall be located within one thousand feet (1,000′) by legal pedestrian route to a public transit stop; and

I. Parking and loading shall be provided as required by Chapter 21.41 (Off-Street Parking and Loading Requirements).

(Ord. C-7500 § 19, 1997: Ord. C-6822 § 19, 1990; Ord. C-6595 § 15, 1989; Ord. C-6533 § 1 (part), 1988)

Table 52-1
Density Multiples for
Handicapped and Senior Citizen Housing

Use	Density Multiple
Handicapped, low rent	3.0
Handicapped, market rent	2.0
Senior citizen, low rent	3.0
Senior citizen, market rent	2.0
Senior citizen, congregate care, low rent	3.0
Senior citizen, congregate care, market rent	2.0

21.52.234 Heliport or blimp port or helipads.

The following conditions shall apply to heliports or blimp ports and helipads:

A. The Aeronautics Bureau of Public Works in consultation with the Federal Aeronautics Administration have found that the proposal presents no air space conflicts. Letters of agreement concerning airspace procedures, altitude and flight tracks, shall be submitted if necessary.

B. The Fire Chief has found the use designed to safely handle any and all flammable and combustible materials to be handled on-site.

C. The use will not adversely affect any residential neighborhood due to take-off, landing or overflight noise.

D. The use is reasonably centrally located within an area of need so that no duplication of facilities will occur that could be avoided by use of another site.

E. Only private, noncommercial heliports, blimp ports or helipads shall be allowed. Ticket sales or any common carrier-type functions are strictly prohibited.

F. Only helipads, without support services, shall be allowed in the CB zone.

(Ord. C-6595 § 28, 1989)

21.52.235 Hotels/motels.

A. **Intent.** Long Beach strongly encourages the development and expansion of the travel industry for vacation, convention and business travel. Hotels and motels are an integral and desirable part of the travel industry. However, as hotels and motels can also be incompatible with nearby residential communities, and can also become inadequately designed permanent housing, it is necessary to provide site-by-site analysis and decisions of the nature and design of such business facilities. Also, as such uses provide a twenty-four (24) hour business environment, careful review is required to ensure compatibility with residential uses. All proposals for new hotels, motels or inns shall comply with the following conditions.

B. **Intensity.** The density of rooms, intensity of facilities, and scale and design of buildings shall be harmonious with surrounding uses and development.

C. **Location.** The location of the use shall be reasonably related to destinations of the traveling public, such as proximity to tourist attractions, convention facilities, business centers, the airport or cruise terminals, or medical centers and shall also be adequately buffered from any incompatible adjoining uses.

D. **Crime.** The site shall not be associated with a location known to have a high concentration of reported crimes.

E. **Design.** The design shall be attractive so as to present a positive image of Long Beach to the traveling public, shall be appropriate to transient occupancy without conversion to long-term occupancy (more than thirty (30) consecutive days), and, where appropriate, shall contribute to an active retail frontage by providing stores, coffee shops or convenience retail on the ground story of major streets. Enriched materials, roof overhangs, windows and doors with jams and sills, architectural protrusions and other detailing and lush landscaping are desirable in making the design attractive. All designs shall also comply with the privacy standards of Section 21.31.240.

F. **Open Space.** The use shall provide not less than one hundred twenty-five (125) square feet of usable open space per guestroom, suite or unit. Not less than fifty (50) square feet of such open space shall be private usable open space according to the provisions of Section 21.31.230. For buildings of three (3) stories or more, all open space may be common open space. Areas used for health clubs or recreation rooms may be counted as common usable open space.

G. **Parking.** All parking designs shall provide through-flow circulation or maneuvering space in a cul-de-sac or "hammerhead" design to allow exiting in a forward direction when all parking spaces are full. Parking spaces shall be provided in adequate number to serve the use according to the following requirements: for hotels/motels less than sixty (60) rooms, suites or units, the minimum parking shall be not less than 1.25 spaces per guestroom, or per two (2) room suite or unit, and 2.00 spaces per suite or unit of three (3) or more rooms, plus parking figured separately for other facilities.

For hotels/motels of sixty (60) rooms or more, see Table 41-1C.

H. **Security.** Project security shall be designed to the satisfaction of the Chief of Police and shall include surveillance of arrivals, departures, and parking areas from the office, and security hardware, alarms and lighting.

(Ord. C-6684 § 8, 1990)

21.52.236 Institutional and public assembly uses.

The following conditions shall apply to public assembly halls, private clubs and similar uses:

A. A long-range development plan shall be submitted for the use;

B. Any new construction shall be consistent with the long-range plan that has been approved by the Planning Commission;

C. All buildings and uses shall be located and buffered to prevent intrusion upon surrounding uses, especially when the use adjoins, abuts or is adjacent to a residential district; and

D. Abundant landscaping, ample building spacing, open space and high quality building design shall be provided.

(Ord. C-6533 § 1 (part), 1988)

21.52.238 Interim housing.

See Special Development Standards 21.45.153 for Interim housing.

(ORD-20-0026 § 21, 2020)

21.52.240 Legalization of dwelling units.

A. The unit(s) in question must have been created before 1964 and continually occupied since that time without having been abandoned pursuant to Section 21.15.030;

B. The unit must meet minimum Housing Code provisions; and

C. The unit must not exceed six hundred forty (640) square feet.

(Ord. C-7032 § 53, 1992)

21.52.240.5 Live-work unit.

The following conditions shall apply to administrative use permits for live-work units:

A. The minimum unit size is seven hundred fifty (750) square feet.

B. Each unit shall have a separate entrance that is clearly identified to provide for emergency services.

C. No more than thirty-three percent (33%) of any unit shall be used for exclusive residential purpose such as sleeping area, kitchen, bathroom and closet areas. The unit shall provide as a minimum full cooking and bathing facilities.

D. All necessary building permits shall be obtained prior to the use of the space for residential occupancy.

E. No mechanical equipment shall be used which generates noise higher than the noise standards established for residential uses (Chapter 8.80 of the Municipal Code).

F. There shall be no outside operations, outside storage or outdoor display of materials or products.

G. No toxic, explosive, flammable, combustible or corrosive materials are to be stored or used on the site in quantities or in a manner that violates any provision of the Uniform Fire Code. No etiologic or radioactive materials shall be used or stored on the site at any time.

H. No process shall be used which is hazardous to public health, safety or welfare.

I. The home occupation shall not displace or block the use of parking spaces required for the residential use including any business storage in required garage parking areas.

J. Not more than two (2) vehicles shall be used in the business. Only one (1) vehicle may be commercially licensed.

K. The property owner shall record a covenant, prior to the issuance of a building permit, ensuring that the provisions of this Section are continually adhered to and that the Live-Work Unit remains consistent with the definition in Section 21.15.1576.

The Zoning Administrator may require the discontinuance of a work activity in a live-work unit with residence if as operated or maintained there has been a violation of any applicable condition or standard. The Zoning Administrator shall have the authority to prescribe additional conditions and standards of operation for any category of work activity in a live-work unit.

(ORD-18-0025 § 16, 2018)

21.52.241 Merchandise mall.

The following conditions shall apply to merchandise malls:

A. Parking shall be provided as required by Chapter 21.41 (Off-Street Parking and Loading Requirements). However, the required number of parking spaces may be reduced if the applicant can demonstrate to the satisfaction of the Planning Commission that a lower standard adequately satisfies the parking demand of a specific business. In no case shall less than five (5) parking spaces per one thousand (1,000) square feet be approved; and

B. The applicant shall demonstrate to the satisfaction of the Planning Commission that tenants of the merchandise mall will pay applicable business license fees and sales taxes.

(Ord. C-6533 § 1 (part), 1988)

21.52.243 Mobile home park.

The following conditions shall apply to mobile home parks:

A. The mobile home park shall not exceed the density of the applicable zone district in which it is located; and

B. The mobile home park shall comply with the development standards of the applicable subdivision for private streets and lot design.

(Ord. C-6533 § 1 (part), 1988)

21.52.244 Subdivision of existing mobile home park.

The following special conditions shall apply to subdivision of an existing mobile home park:

A. The mobile home park shall contain a minimum community area open space of two hundred (200) square feet per lot.

B. The mobile home park shall have a minimum density of nine (9) units per acre.

C. The mobile home park shall contain a minimum of one (1) guest parking space for each fifteen (15) lots.

D. The mobile home park shall contain a minimum of one hundred (100) square feet of recreational vehicle storage per lot.

E. The mobile home park shall have a minimum project setback of twenty (20) feet from any public street.

F. RV storage and vehicle parking and storage shall be reserved for use by the owners/tenants of the mobile home park.

(ORD-07-0019 § 6, 2007)

21.52.246 Motorcycle/jet ski sales and repair.

A. All sales and repair activities shall comply with the standards of Chapter 21.45 (Special Development Standards).

B. The applicant shall demonstrate an ability to control noise during engine testing to comply with City noise regulations Chapter 8.80 (Noise) and avoid neighborhood disturbances.

(Ord. C-7047 § 26, 1992: Ord. C-6533 § 1 (part), 1988)

21.52.247 Building design in the CNP zone.

A. The use will primarily serve the local community.

B. The project must comply with Section 21.32.230 Design of buildings, to insure pedestrian orientation.

C. Drive-thru lanes are prohibited.

D. Existing curb cuts from the primary pedestrian thoroughfare must be closed and vehicular access taken from alleys and/or secondary streets.

(Ord. C-7729 § 10, 2001: Ord. C-7047 § 34, 1992)

21.52.249 Nursery schools, day nurseries, preschools, childcare centers, daycare centers and similar uses for daytime care and education of a limited number of persons.

The following conditions shall apply to all nursery schools, day nurseries, preschools, childcare centers, daycare centers and similar uses for daytime care and education of a limited number of persons:

A. A minimum of seventy-five (75) square feet of outdoor play area per child shall be provided on the site;

B. In residential districts, no other similar facility may be located and operating within one-half (1/2) mile (2,640 feet) of the proposed site;

C. The hours of operation shall be limited to the hours between six o'clock (6:00) a.m. and seven-thirty (7:30) p.m.; and

D. Adequate off-street loading spaces shall be provided to prevent adverse effects upon the neighborhood.

(ORD-18-0025 § 11, 2018; Ord. C-6533 § 1 (part), 1988)

21.52.251 Office uses in residential districts.

The following conditions shall apply to office uses in residential districts:

A. The total nonresidential use shall not exceed forty percent (40%) of the square footage of the building.

(Ord. C-6533 § 1 (part), 1988)

21.52.256 Outdoor sales events.

The following conditions shall apply to flea markets, swap meets, vehicle sales events and the like:

A. All uses shall be compatible with adjacent uses; and

B. The sale of used merchandise may be permitted; and

C. Vehicle sales events may be permitted only in the institutional zone on sites five (5) acres or greater in size and only when sponsored by a church, school, educational institution or public or private nonprofit organization, and shall be conducted on the premises of such an organization; and

D. The hours of operation shall be nine (9:00) a.m. to five (5:00) p.m. with the exception that setup shall be allowed a early as seven (7:00) a.m. and as late as seven (7:00) p.m. The Planning Commission may grant extended hours of operation based on the proximity to residential land uses; and

E. The proposed frequency of events shall be stated in the application and subject to review; and

F. The operator shall demonstrate to the satisfaction of the Planning Commission that applicable business license fees and sales taxes will be paid; and

G. An event signage plan shall be submitted in the application and subject to review; and

H. Adequate restroom facilities shall be provided on-site during hours of operation; and

I. A parking plan shall be submitted in the application and subject to review. The hours of parking demand of the outdoor sales event shall not conflict with the hours of parking demand of the principal use on-site, if any, and shall be provided in accordance with the provisions of Chapter 21.41 (Off-street Parking and Loading Requirements); and

J. The operator shall demonstrate an ability to control problems related to noise, loitering, and litter; and

K. The operator shall provide a safety and security plan to the satisfaction of the Chief of Police; and

L. The operator shall obtain all necessary permits from the Fire Department for the temporary structures for each outdoor sales event.

(Ord. C-7881 § 4, 2003: Ord. C-6533 § 1 (part), 1988)

21.52.257 Parsonage.

The following conditions shall apply to administrative use permits for a parsonage: The living area shall not exceed twenty-five percent (25%) of the church floor area.

(Ord. C-7032 § 54, 1992)

21.52.259 Pistol or rifle range.

The following conditions shall apply to pistol and rifle ranges:

A. The use shall be soundproofed as necessary to avoid adverse impacts on nearby noise sensitive uses; and

B. The operator shall incorporate safety measures into facility design as required by the Chief of Police.

(Ord. C-6533 § 1 (part), 1988)

21.52.260 Interim Playgrounds, urban agriculture use, community gardens and recreational parks.

The following shall apply to interim playgrounds, community gardens and recreational parks. Only A, B, and C apply to urban agriculture uses:

A. Improvements for an interim playground/community garden/recreational park shall be limited to landscaping, irrigation systems, accessory buildings and accessory structures.

B. The following setbacks shall apply to all accessory buildings and accessory structures:

1. Front. The front setback shall be the same as a principal structure in the applicable zoning district.

2. Side. A four-foot (4') side setback is required when abutting a residential district otherwise none is required.

3. Rear. A ten-foot (10') rear setback is required when abutting a residential district otherwise none is required.

C. The maximum height of any accessory building shall be thirteen feet (13').

D. The interim playground/community garden/recreational park hours of operation shall be seven-thirty (7:30) a.m. to dusk.

E. Off-street parking shall not be required for an interim playground/community garden/recreational park.

F. Adequate trash receptacles shall be provided and maintained for the life of the use.

(ORD-20-0025 § 11, 2020; ORD-17-0024 § 5, 2017; Ord. C-7378 § 28, 1995)

21.52.261 Police training academy.

The following conditions shall apply to the police training academy use:

A. The use shall be isolated from noise sensitive uses; and

B. A master plan for future facility expansion shall be reviewed and approved with any specific building request.

(Ord. C-6533 § 1 (part), 1988)

21.52.263 Elementary and secondary schools.

The following conditions shall apply to private elementary and secondary schools:

A. Such facilities shall be located on a Neighborhood Connector or Local Street as defined by the City of Long Beach Mobility Element;

B. Such facilities shall conform to the development standards of the district in which they are located including parking;

C. In a residential zone, the site shall be limited to forty thousand (40,000) square feet in size; and

D. An applicant seeking to convert an existing commercial building into a school shall file a request with the Building Bureau for a special code compliance inspection. The report shall address all building code issues related to establishing a school in a commercial building. The report must be received by the Planning Bureau before an application for conditional use permit is considered complete.

E. The Zoning Administrator may approve an exception to the locational requirements in subsection A, based on the following findings:

1. The total number of students, staff and visitors on the site at any one time shall not exceed 100; and

2. The applicant has submitted a plan for accommodating all pick-up and drop-off activity on the site; or

3. The applicant has established other trip reduction measures to ensure that the total number of daily trips to and from the site will not exceed the number of trips the Mobility Element has established for the street classification applicable to the site.

(ORD-19-0011 § 10, 2019; Ord. C-7378 § 20, 1995: Ord. C-6533 § 1 (part), 1988)

21.52.265 Recycling collection center.

A. Recycling collection centers located in any industrial district shall be limited to a maximum of five (5) years for any single approval.

B. The use shall be compatible with surrounding existing uses.

C. The operator shall take all reasonable steps to mitigate intrusive noise to adjacent residential uses.

D. The site shall remain clean at all times.

E. The entire site shall be paved.

F. The site shall be screened with an eight-foot-high (8′) solid wall.

(Ord. C-7360 § 8, 1995; Ord. C-7247 § 25, 1994: Ord. C-6684 § 9, 1990)

21.52.265.5 Residential historical landmarks.

The following conditions shall apply to all residential historical landmarks seeking to establish a commercial use:

A. The following commercial uses listed below may be allowed through the administrative use permit process (where the permitted use table for the applicable zone is more permissive than these provisions, then the applicable zone use table shall apply):

1. Artist studio with residence pursuant to Section 21.52.204.

2. Bed and breakfast pursuant to Section 21.52.209.

3. Daycare center/pre-school pursuant to Section 21.52.249.

4. Professional school/business school.

5. Professional services:

a. Administrative

b. Attorney

c. Consultant

d. Dental

e. Engineering/architectural

f. Finance

g. Insurance

h. Medical

i. Real estate

6. Retail sales:

a. Antiques

b. Art gallery

c. Book dealer

d. Collectibles

B. An applicant seeking to establish a commercial use in a residential historical landmark building shall file a request with the Building Bureau for a special code compliance inspection with reference to the State Historical Building Code. The resulting report shall address all building

code issues with reference to the State Historical Building Code related to establishing the commercial use in a residential building. This report must be received by the Planning Bureau before an application for an administrative use permit is considered complete for processing.

C. All required parking, as set forth in Chapter 21.41, Off-Street Parking and Loading Requirements, shall be provided to establish the proposed use.

(Ord. C-7378 § 29, 1995)

21.52.266 Restaurant with alcoholic beverage sales.

The following conditions shall apply to restaurants selling alcoholic beverages of any kind:

A. The operator of the use shall prevent loitering in any parking areas serving the use; and

B. Parking shall be provided as required by Chapter 21.41 (Off-Street Parking and Loading Requirements) regardless of status of the previous use with regard to legal nonconforming parking, except as provided in Sections 21.41.165 and 21.41.175.

(ORD-24-0033 § 27, 2024; Ord. C-6533 § 1 (part), 1988)

21.52.269 Restaurant in the R-4-H district.

The following conditions shall apply to restaurants in the R-4-H zoning district:

A. The public entrance shall be from the lobby of the residential building;

B. No signs shall be placed outside the building; and

C. Sale of alcoholic beverages in restaurants shall be limited by the following additional conditions:

1. The operator of the use shall provide not less than ten (10) parking spaces per one thousand (1,000) square feet of dining area plus twenty-five (25) parking spaces per one thousand (1,000) square feet of lounge, bar or waiting area regardless of status of the previous use as to legal nonconforming parking, except as provided in Sections 21.41.165 and 21.41.175.

2. The operator of the use shall prevent loitering in any parking areas serving the use.

(ORD-24-0033 § 28, 2024; Ord. C-6533 § 1 (part), 1988)

21.52.269.1 Safe parking site.

See Special Development Standards 21.45.163 for Safe parking site.

(ORD-20-0026 § 22, 2020)

21.52.270 Sandwiched lot.

The development on the sandwiched lot shall be limited to R-4-R density and development standards.

(Ord. C-6895 § 32, 1991)

21.52.270.1 Secondhand shops.

The following shall apply to new secondhand/thrift shops and as a requirement for approval of any increase in the floor area of an existing shop:

A. All sales and display of merchandise shall be permitted only within a building;

B. Exterior alterations to the premises and all signage must be designed and installed in compliance with all applicable City regulations and guidelines;

C. The building and site shall be maintained in a neat, clean and orderly condition;

D. Outside storage shall not be permitted;

E. The store shall not authorize the donation or drop-off of any goods while the store is closed; and

F. The operator shall post a notice in a visible location at any public entrance, which states that goods may not be deposited when the store is closed and listing hours when and where donations will be accepted.

(ORD-18-0025 § 17, 2018)

21.52.271 Special group residence (board and care, convalescent home, half-way house, boardinghouse/lodginghouse, communal housing and the like).

The following conditions shall apply to special group residences including, but not limited to, board and care, convalescent home, half-way house, boardinghouse/lodginghouse and communal housing:

A. **Density.** In a residential zone, special group housing shall be limited to the density allowed by the underlying zone district multiplied by the number indicated in Table 52-2. In congregate care facilities, each bedroom with one (1) or two (2) beds shall count as a unit when calculating density. In bedrooms with more than two (2) beds, each bed shall count as a unit. This shall be the maximum permitted density. The Planning Commission may require a lower density as the situation requires. In a nonresidential zone, density shall be limited to one (1) unit per two hundred (200) square feet of lot area;

B. **Location.** In a residential district, no other similar facility may be in operation within one-half (1½) mile of the proposed project site. If the use is a fraternity or sorority, the use shall be sufficiently isolated from other residential uses so as not to potentially disturb the neighborhood;

C. **Concerns.** Consideration of the conditional use permit shall address crime rate, concentration of similar uses, and the style and scale of the proposed building in relation to other buildings in the immediate vicinity;

D. **Continuation of Use.** The applicant shall provide evidence that the use will remain as that use applied for through deed restriction or other method suitable to the Planning Commission;

E. **Open Space.** Each facility shall provide not less than three hundred (300) square feet of common open space and one hundred fifty (150) square feet of usable open space per unit or room. Of the one hundred fifty (150) square feet, not less than fifty (50) square feet shall be private open space, and the remainder may be common open space added to the required three hundred (300) square feet of common open space;

F. **Public Transit Stop.** The facility shall be located within one thousand feet (1,000′) by legal pedestrian route to a public transit stop; and

G. **Parking.** Parking and loading shall be provided as required by Chapter 21.41 (Off-Street Parking and Loading Requirements).

(Ord. C-6595 § 16, 1989; Ord. C-6533 § 1 (part), 1988)

Table 52-2
Density Multiples for Special Group Residences

Use	Density Multiple
Board and care home (limit of 50 beds)	2.0
Convalescent home (limit of 50 beds)	2.0
Boardinghouse/lodginghouse (limit of 50 beds)	2.0
Halfway house (limit of 50 beds)	2.0
Fraternity or sorority (limit of 50 beds)	2.0
Dormitory (limit of 50 beds)	2.0
Monastery, convent, communal housing, religious house (limit of 50 beds)	2.0

21.52.273 Tattoo or fortunetelling services.

A. The following conditions shall apply to fortunetelling services:

1. No new fortunetelling uses shall be located within one thousand feet (1,000′) of any existing adult entertainment, arcade, fortunetelling, tattoo parlor or tavern use; and

2. Fortunetelling uses shall operate only between the hours of seven (7:00) a.m. and ten (10:00) p.m.

B. Prior to approval of an Administrative Use Permit for Tattoo Parlors, if an Administrative Use Permit is required, the Zoning Administrator shall, in addition to findings requested in Section 21.25.407, find that the proposed tattoo parlor does not introduce new light, noise, or traffic near neighboring sensitive land uses, including residences, businesses, schools, childcare, or pre-school facilities, that is beyond normal circumstances in that location.

(ORD-18-0013 § 4, 2018; Ord. C-6533 § 1 (part), 1988)

21.52.279 Through-block commercial.

The following conditions shall apply to through-block commercial:

A. The proposed site shall abut, adjoin or be adjacent to a commercial district, or a planned development district designated for commercial uses;

B. The proposed site shall be developed as a unified site with an abutting, adjoining or adjacent commercially zoned site;

C. Through-block commercial shall only be permitted on a property that has two (2) street frontages but is not a corner lot as illustrated in Figure 52-1;

D. Vehicular and/or pedestrian access shall not be permitted from or across the residential street frontage;

E. The site shall be developed according to the height and yard requirements of the residential district in which it is located;

F. The commercial uses permitted shall be the same as those on the abutting, adjoining or adjacent commercial district with which the site is being developed;

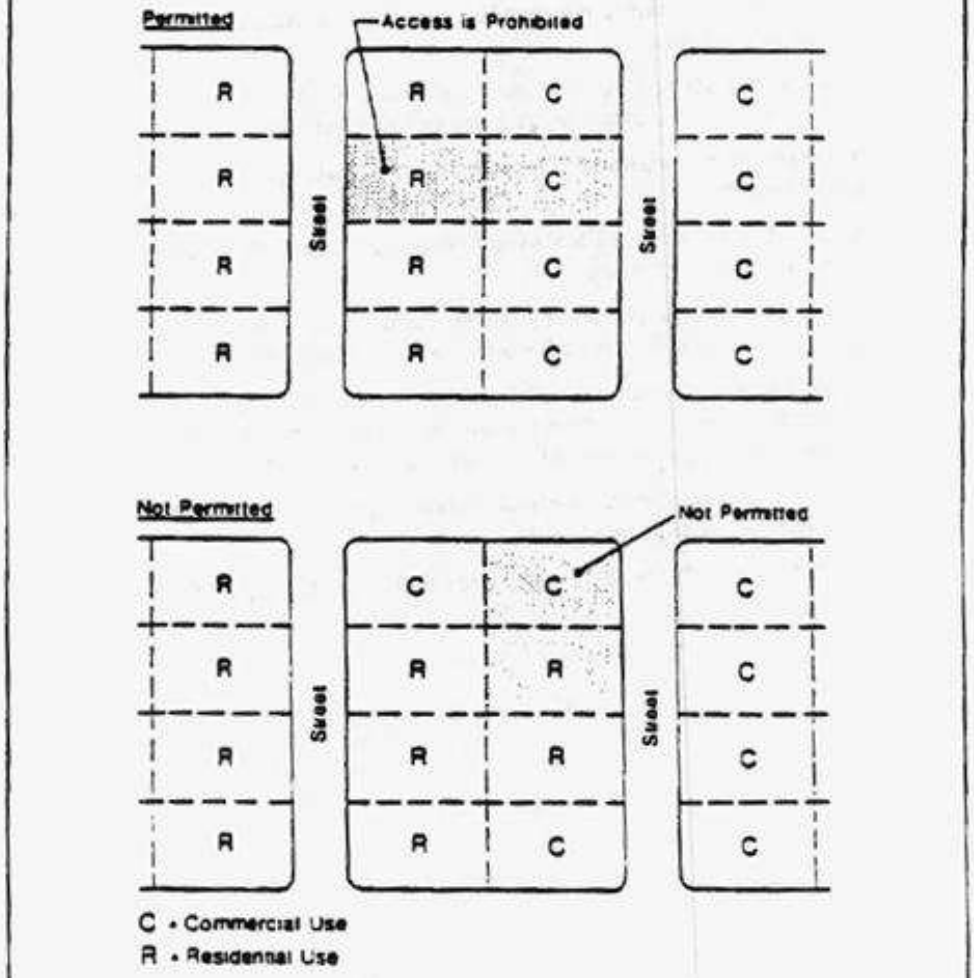
G. Any portion of the building or buildings visible from a public street, or abutting, adjoining or adjacent to a residential district shall be designed, treated and finished in a manner compatible with adjacent residential areas and with other visible sides of the building; and

H. The yards facing residential uses shall be landscaped in a manner which protects the privacy and serenity of the residential uses.

(Ord. C-7247 § 26, 1994: Ord. C-7047 § 27, 1992; Ord. C-6684 § 40, 1990; Ord. C-6533 § 1 (part), 1988)

Figure 52-1
THROUGH-BLOCK COMMERCIAL

Section 21.52.279



21.52.280 Tutoring center.

Tutoring centers greater than two thousand five hundred (2,500) square feet shall be subject to the following:

A. Loading. Two (2) loading spaces shall be provided as per Chapter 21.41;

B. Impacts on surrounding uses. Hours of operation and business practices shall mitigate impacts to surrounding uses. These include, but are not limited to, appointment-based tutoring sessions, maximum occupants, and hours of operation.

(ORD-19-0028 § 37, 2019)

21.52.281 Reserved.

Editor's note—ORD-18-0025 § 2, adopted Oct. 2, 2018, repealed § 21.52.281 entitled "Thrift shops," which derived from: Ord. C-7047 § 28, 1992; and Ord. C-6533 § 1 (part), 1988.

21.52.283 Vehicle rental services.

The following conditions shall apply to vehicle rental service uses:

A. In the CO and CB zones, only passenger vehicles and bicycle rentals shall be allowed;

B. Any vehicle repair activities shall comply with the regulations pertaining to outdoor vehicle repair uses as set forth in Chapter 21.45 (Special Development Standards). However, in the CO, CT or CB zones, all repair work shall occur within a fully enclosed building; and

C. In the CO zone, the project site must be within one-half (1/2) mile of the CB or CT zone, or five hundred (500) hotel rooms, or a passenger terminal of an airport, cruise ship or rail transit line.

(Ord. C-6533 § 1 (part), 1988)

21.52.286 Reserved.

Editor's note—ORD-19-0028 § 38, adopted Nov. 5, 2019, repealed § 21.52.286 entitled "Veterinary uses," which derived from Ord. C-6533 § 1 (part), 1988.

21.52.410 Special conditions—Industrial uses.

Certain industrial uses identified in Chapter 21.33 (Industrial Uses) are subject to conditional use permit review and approval. In addition to the standard considerations and findings required to approve a conditional use permit, the following additional considerations and findings shall be made:

A. The proposed use, and the siting and arrangement of that use on the property, will not adversely affect surrounding uses nor pose adverse health risks to persons working and living in the surrounding area.

B. Adequate permitting and site design safeguards will be provided to ensure compliance with the performance standards for industrial uses contained in Section 21.33.090 (Performance Standards) of this Title.

C. Truck traffic and loading activities associated with the business will not adversely impact surrounding residential neighborhoods.

D. Businesses involved with hazardous waste treatment, hazardous waste disposal, or hazardous waste transfer shall comply with the following location requirements:

1. The use shall not be located within two thousand feet (2,000′) of any residential zone or use, any hotel or motel, any school or daycare facility, any hospital or convalescent home, any church or similar facility, or any public assembly use.

2. The use shall not be located within one hundred feet (100′) of any known earthquake fault, or within a fault hazard or flood hazard zone identified by the State of California.

3. The use shall not be located on any land subject to liquefaction, as identified in the Seismic Safety Element of the General Plan, unless appropriate soils remediation occurs as required by the City Engineer.

(Ord. C-7360 § 9, 1995: Ord. C-6533 § 1 (part), 1988)

21.52.610 Uses in the Park (P) district.

Prior to the granting of a conditional use permit for uses in the park district, the following findings shall be made by the appropriate body:

A. The use is consistent with the intent of the Park District, the General Plan, the local coastal program, and any applicable specific plan;

B. The use does not permanently remove or impinge upon any significant public open space or impede public access thereto;

C. For commercial recreation uses, the use provides a needed public recreation service which otherwise would not be available to the public; and

D. For commercial recreation uses, the use cannot reasonably be located to provide comparable public recreation service on private land appropriately zoned for such use.

(Ord. C-7153 § 3, 1993: Ord. C-7032 § 43, 1992; Ord. C-6533 § 1 (part), 1988)

CHAPTER 21.53 TEMPORARY USES

21.53.010 Purpose.

This Chapter establishes the specific regulations for temporary uses in all zoning districts. Uses listed in Chapters 21.31 through 21.36 of this Title as temporary uses (T) are permitted subject to these regulations.

(Ord. C-6533 § 1 (part), 1988)

21.53.100 Use regulations.

All temporary uses shall be permitted upon written approval of the Zoning Administrator and shall be limited to not more than ten (10) consecutive calendar days unless permitted otherwise. The uses set forth in Sections 21.53.103 through 21.53.123 are subject to the additional limitations provided in those Sections.

(Ord. C-6533 § 1 (part), 1988)

21.53.103 Construction trailer.

A trailer used for construction offices or watchperson's quarters is permitted at a construction site, including public works projects, provided:

A. The trailer is located on the same or adjacent premises as the construction project.

B. The trailer is used only during the period of construction.

(Ord. C-6533 § 1 (part), 1988)

21.53.106 Mobile food truck or Mobile food facility at specified public parks.

A mobile food truck or mobile food facility may be permitted as a temporary business within a public park, as follows:

A. Outside the coastal zone, mobile food facilities may operate within designated parking spaces at select parks determined by the Director of Parks, Recreation, and Marine or his or her designee. The City shall publish and maintain the list of designated parks on a public facing website.

B. Within the coastal zone, mobile food facilities may operate at specified public park areas as follows:

a. Mobile food facility operators may vend in available parking spaces in the Shoreline Aquatic Park Surface Parking Lot on a first come first serve basis, if adhering to all parking, ordinance, and safety regulations and during times when the lot is not restricted for special events.

b. Mobile food facility operators may vend in up to two (2) designated parking spots in the Granada Beach Surface Parking Lot on a first come first serve basis, if adhering to all parking, ordinance, and safety regulations and during times when the lot is not restricted for special events.

C. Mobile food facilities operating within the above-designated parks shall be on a first-come first served basis during official park operating hours, but in no case later than 10:00 p.m., and only at times when the lot is not restricted to special events.

D. Mobile food facilities shall only park in designated mobile food facility parking spaces.

E. Mobile food facilities vendors are prohibited from vending in any other parking spaces within the parking lot, impeding access to abutting parking spaces, or from reserving designated mobile food facilities spaces by parking their vehicle(s) outside of operating hours.

F. Temporary fixtures such as tables, chairs, umbrellas, canopies, and signage are not permitted at mobile food facilities operating within public parks.

G. Mobile food trucks or mobile food facilities shall not vend within 500 feet of any concessionaire that has signed an agreement for concessions with the City that exclusively permits the sale of food or merchandise by the concessionaire.

H. This Section shall not apply to mobile food facilities permitted through a Special Events Permit issued by the Office of the City Manager.

I. A mobile food facility shall comply with the applicable Special Development Standards specified in Section 21.45.133.6.

(ORD-26-0012 § 7, 2026; Ord. C-7607 § 6, 1999: Ord. C-6533 § 1 (part), 1988)

21.53.109 Special events (carnival, fiesta, other outdoor exhibition or celebration) in residential, institutional and park zone districts.

A. A special event under this Section shall not last longer than ten (10) days.

B. The event shall be sponsored by a church, school, educational institution or public or private nonprofit organization, and shall be conducted on the premises of such an organization or approved for use as a City park or other public property.

C. Special events in residential and institutional zones shall be limited to not more than twice in any calendar year at any one (1) site.

(Ord. C-6895 § 25, 1991: Ord. C-6533 § 1 (part), 1988)

21.53.113 Special events (carnivals, fairs, circuses, grand prix events, seasonal sales and the like) in commercial, industrial, public right-of-way and planned development zone districts.

A. Except for seasonal sales, no special event under this Section shall last longer than ten (10) consecutive calendar days at one (1) site.

B. Seasonal sales (the sale of items symbolic of religious, national or traditional holidays, including the seasonal sale of fruit) shall not last longer than sixty (60) consecutive calendar days at one (1) site.

C. Parking shall be provided as required by Chapter 21.41 (Off-Street Parking and Loading Requirements).

D. Parking lot sales shall be conducted on the same or adjacent premises as the principal use.

E. Except for seasonal sales, special events shall be limited to not more than twice any calendar year at one (1) site unless designated for public park, convention center, arena, auditorium or stadium use.

F. Seasonal sales events may apply to the Zoning Administrator for a maximum thirty (30) daytime extension.

(Ord. C-7326 § 29, 1995: Ord. C-6895 § 26, 1991: Ord. C-6533 § 1 (part), 1988)

21.53.115 Temporary activating uses.

A. Purpose. The purpose of this Section is to allow community-serving temporary uses on vacant lots. Such uses are intended to provide a community benefit, encourage street activation, and reduce visual blight associated with vacant lots, as defined in Chapter 18.29, on a temporary basis and can include sporadic special events, such as cultural and community events, or temporary retail or services uses, such as bike kitchens. Temporary activating uses are proposed by community based public or private organizations that improve and enhance the social or economic welfare and quality of life of the residents of Long Beach and provide a service to City residents including, but not limited to, faith-based organizations, local non-profit organizations or associations, Business Improvement Districts (BIDs), and organizations which have entered into a contract or agreement with the City to provide specific services or outreach, as determined by the Zoning Administrator.

B. Use Regulations. Notwithstanding Sections 21.53.109 and 21.53.113, all temporary activating uses shall be permitted upon written approval of the Zoning Administrator and are subject to the following standards and findings:

1. No temporary activating use shall be allowed which would not otherwise be allowed in the applicable zoning district or the General Plan designation, unless the Zoning Administrator determines that the use is compatible with existing surrounding uses.

    a. Temporary activating uses proposed in residential zones shall be allowed along Neighborhood Connector and more intense arterial streets, as defined in the Mobility Element.

2. The applicant is a community-based public or private organization or association serving the residents of the City as described in this Section, as determined by the Zoning Administrator.

3. A temporary activating use is subject to compliance with Americans with Disabilities Act (ADA) requirements per the Building Code.

4. Vacant lots used for temporary activating uses shall be maintained free of weeds, dry brush, dead vegetation, trash, garbage, junk, debris, building materials, vehicles, cars, boats, campers, any accumulation of newspapers, circulars, flyers, notices (except those required by federal, state or local law), discarded personal items, including but not limited to, furniture, clothing, large and small appliances, graffiti, tagging or similar markings. The property owner or other responsible person must inspect the property at reasonable intervals or take other reasonable steps to ensure that there is no dead or dying vegetation, litter, weeds, graffiti, debris or materials accumulating on the property.

5. Temporary activating uses that are sporadic special events shall be permitted for a period of up to six (6) months at the discretion of the Zoning Administrator. These types of uses are eligible for up two additional six-month renewal periods not to exceed a maximum of eighteen (18) months for the same use. Conditions may be modified by the Zoning Administrator during the renewal process, as necessary, to ensure compatibility with the surrounding area.

6. Other temporary activating uses that do not fall under the category of sporadic special events shall be permitted for a period of up to one year at the discretion of the Zoning Administrator. These types of uses may be renewed for up to two (2) additional one-year periods not to exceed a maximum of three (3) years for the same use. Conditions may be modified by the Zoning Administrator during the renewal process, as necessary, to ensure compatibility with the surrounding area.

7. Projects may be granted relief from development standards for temporary activating uses by the Zoning Administrator if positive findings can be made for the following:

    a. The use shall further the goals of the general plan, provide a community benefit, activate the street, and reduce visual blight associated with vacant lots;

    b. The use shall not cause substantial adverse impacts upon the surrounding area including public health, safety and general welfare;

    c. The use shall be compatible with the surrounding area.

8. The fee for temporary activating use permits shall be the fee charged for Administrative Land Use Review (ALUR) permits. Each renewal application for a temporary activating use is subject to the same fee.

9. The Zoning Administrator shall have the authority to revoke or refuse to approve or renew a temporary activating use permit if the Zoning Administrator determines that there has been a violation of the terms or conditions of the approval or evidence of negative impacts on the surrounding area. The Zoning Administrator's action may be appealed to the Planning Commission.

(ORD-20-0018 § 24, 2020)

21.53.116 Trailer in Port district.

A trailer or trailers may be erected in the Port district as a temporary business office when authorized by the Board of Harbor Commissioners.

(Ord. C-6533 § 1 (part), 1988)

21.53.119 Trailer for real estate sales or lease.

A trailer used as a sales or lease office or model home display unit is permitted, provided the trailer is used only during the period of construction and original sale or other disposition of the first eighty percent (80%) of the lots, parcels or units or leasable areas of all phases of a new subdivision or building project.

(Ord. C-6533 § 1 (part), 1988)

21.53.123 Trailer for temporary business office.

A trailer or trailers may be erected as a temporary business office provided:

A. The trailer or trailers are used for a period not to exceed one (1) year; and

B. The structures comply with all development standards of the applicable zone district; and

C. The trailer or temporary building is not allowed until a building permit is issued for a permanent building on the site, or the building on the site was damaged by fire, explosion, earthquake, imminent public hazard, act of terrorism, sabotage, vandalism, warfare, or abatement of earthquake hazard.

(Ord. C-7032 § 44, 1992; Ord. C-6533 § 1 (part), 1988)

CHAPTER 21.54 BILLBOARDS*

21.54.010 Purpose.

Billboards are recognized as a legitimate form of commercial use in the City. However, the size, number, location and illumination of billboards can have significant influence on the City's visual environment, and can, without adequate control, create or contribute to blighted conditions. The purpose of this Chapter is to provide reasonable billboard control, recognizing that community appearance is an important factor in ensuring the general community welfare. Additionally, it is the purpose of this Chapter to eventually eliminate nonconforming billboards from the City, especially in residential zoning districts and other sensitive areas, through the creation of incentives for the development of conforming billboards linked to requirements for removal of nonconforming billboards in exchange.
(ORD-14-0006 § 1, 2014)

21.54.020 Definition of terms.

A. The terms "billboard" and "off-premises sign" may be used interchangeably to mean the same thing. The term "billboard," when used generally, shall also include electronic billboards and any other form of off-premises advertising;

***Editor's note**—ORD-14-0006 § 1, adopted June 17, 2014, amended Ch. 21.54 in its entirety to read as herein set out. Former Ch. 21.54, §§ 21.54.010—21.54.450, pertained to similar subject matter and derived from: Ord. C-6533, § 1, 1988; and Ord. C-6534, §§ 1, 2, 1988; and ORD-12-0006, § 5, adopted Mar. 13, 2012.

B. "Mixed-use districts," when referenced in this Chapter, shall include Planned Development (PD) Districts, or sub-areas thereof, allowing residential and/or commercial uses;

C. "Residential districts," when referenced in this Chapter, shall include those Planned Development (PD) Districts, or sub-areas thereof, allowing residential uses;

D. "Adjacent," when used to refer to a billboard adjacent to a freeway, shall mean located within, either in whole or in part, an area formed by measuring six hundred sixty feet (660') laterally from the edge of the right-of-way of a landscaped freeway section along a line perpendicular to the centerline of the freeway (as defined in California Code of Regulations, Title 4, Chapter 1, Section 2242);

E. "Freeway-oriented" shall mean any billboard that is adjacent to a freeway, as set forth in Subsection D above, and designed to be viewed primarily by persons traveling on the main-traveled way of the freeway.

(ORD-14-0006 § 1, 2014)

21.54.030 Consistency with the Outdoor Advertising Act.

To the extent that there is any conflict between the provisions of this Chapter and the provisions of the Outdoor Advertising Act, California Business and Professions Code Sections 5200 et seq., the Outdoor Advertising Act shall prevail.
(ORD-14-0006, § 1, 2014)

21.54.040 Severability clause.

If any provision or clause of this Chapter or the application thereof to any person or circumstance is held to be unconstitutional or to be otherwise invalid by any court of competent jurisdiction, such invalidity shall not affect other Chapter provisions or clauses or applications, and to this end the provisions and clauses of this Chapter are declared to be severable.
(ORD-14-0006, § 1, 2014)

DIVISION I.

USE REGULATIONS

21.54.110 Use regulations.

Billboards are a principal use of land and are restricted to the zoning districts indicated in Table 54-1 of this Chapter. Any type, style, or location of billboard development not specifically permitted by this Chapter shall be prohibited.
(ORD-14-0006, § 1, 2014)

21.54.111 Conditional Use Permit required.

A Conditional Use Permit shall be obtained prior to the issuance of a building permit for any project involving construction of a new billboard or electronic billboard, conversion of an existing billboard to an electronic billboard, expansion or modification of a billboard, or addition of additional face(s) to a billboard, and as otherwise specified in this Chapter and Title. No Conditional Use Permit shall be approved unless the required findings, contained in Section 21.54.115, are made. A Conditional Use Permit shall not be required if a development agreement is applied for and executed in accordance with Section 21.54.112. Any Relocation Agreement, as provided for under the provisions of the Outdoor Advertising Act (California Business and Professions Code Section 5412 et seq.), shall be accomplished through the development agreement process.
(ORD-14-0006, § 1, 2014)

21.54.112 Development agreements.

A. An applicant shall be eligible to apply for a development agreement in accordance with Chapter 21.29 in the event that it is infeasible to comply with the provisions of Section 21.54.160. This development agreement shall be in lieu of the Conditional Use Permit required by Sections 21.54.111, 21.54.140, and 21.54.150.

B. For the purpose of this Section, an applicant shall be required to demonstrate to the satisfaction of the relevant approval body that it lacks an inventory of non-freeway-oriented billboards eligible for removal such that would satisfy Section 21.54.160. A finding of "infeasibility" is at the discretion of the relevant approval body.

C. For the purpose of this Section, an applicant shall not be deemed ineligible to apply for a development agreement because the applicant cannot meet the lot size requirement set forth in Section 21.29.020.

D. All development agreements entered into in accordance with this Section shall contain appropriate standards and public benefits and shall comply with all other requirements and standards imposed by this Chapter, except the conditional use permit requirement of Section 21.54.111. However, the development agreement shall address the Conditional Use Permit findings of Section 21.54.115, and declare whether said findings can be made as part of the determination of appropriate standards and public benefits.

E. Billboards constructed on property owned by the City or its related agencies may be accomplished by lease or license in lieu of a development agreement, and any reference to a development agreement in this Chapter shall include leases or licenses on such properties.

F. Any aggrieved applicant or person may appeal the determination of the Planning Commission regarding a finding of infeasibility to the City Council in accordance with the appeal provisions set forth in Chapter 21.21, Division V, of this Title.

G. In lieu of meeting the removal requirements of Section 21.54.160, the terms of the development agreement shall require the following of the applicant:

1. For construction of a new freeway-oriented billboard, the applicant shall be required to permanently remove, at a minimum, an existing freeway-oriented billboard or billboards with total display surface area equal to that of the proposed billboard(s). However, a greater removal ratio may be required at the discretion of the approving body.

2. The applicant shall agree (using a written instrument to the satisfaction of the City Attorney) not to petition or apply to the State of California for the removal or reclassification of the status of a landscaped freeway section within the City of Long Beach (under Sections 2511 or 2512 of the California Code of Regulations).

3. All new freeway-oriented billboards approved under the development agreement shall be located at least three hundred feet (300') from a Residential, Institutional, or Park zoning district and shall not be adjacent to (as defined in Subsection 21.54.020.D) a landscaped freeway segment, as set forth in Subsection 21.54.120.B.2.

H. All applicants shall be eligible to apply for a development agreement for the conversion of a freeway-oriented billboard to electronic, including existing billboards located adjacent to a landscaped freeway segment, regardless of the infeasibility requirement of Subsection 21.54.112.B.

(ORD-14-0006, § 1, 2014)

21.54.113 Sponsorship or advertising on public property under Chapter 16.55.

Any contract, permit, license or agreement entered into in accordance with Chapter 16.55 of the Long Beach Municipal Code shall not be subject to the zoning regulations set forth in this Chapter.

(ORD-14-0006, § 1, 2014)

21.54.114 Separate applications.

Each individual proposal for construction of a new billboard or electronic billboard, or modification of a billboard, or conversion of an existing billboard to an electronic billboard, shall be considered a separate application, and each application shall be separately and individually subject to a Conditional Use Permit, and the provisions and requirements of this Chapter. Multiple sites shall not be combined into one application. This Section shall not apply to applications for development agreements under Section 21.54.112.

(ORD-14-0006 § 1, 2014)

21.54.115 Required findings.

In addition to the required findings for a Conditional Use Permit (Section 21.25.206), the Planning Commission or City Council, as applicable, shall not approve a Conditional Use Permit for any billboard project unless positive findings also can be made for the following:

A. The proposed billboard does not represent a net increase in billboard sign area Citywide.

B. The applicant or developer has provided a written plan and a letter of intent explaining how the requirements of Subsections 21.54.160.A or B (which require removal of certain amounts of existing billboard area in exchange for rights to construct a new billboard or convert an existing billboard to electronic) will be accomplished.

C. The billboard shall not constitute a hazard to the safe and efficient operation of vehicles upon a street or freeway.

D. For a new billboard, adequate spacing will exist between the proposed billboard and any existing or proposed billboards in the vicinity, such that negative visual and aesthetic impacts upon the neighborhood and surrounding land uses shall be avoided.

E. The size of the proposed billboard will not be out of context with its visual environment, or be visually disruptive to neighboring properties and structures.

F. For electronic billboards, the applicant has demonstrated technically, through a light study or similar study, that the billboard will not cause light and glare to intrude upon residential land uses, including those in mixed-use districts.

G. Approval of this permit is consistent with the intent of Chapter 21.54 (Billboards), which is, primarily, to provide reasonable billboard control and to cause the eventual elimination of nonconforming billboards from the City.

(ORD-14-0006 § 1, 2014)

21.54.118 Locations allowed.

Billboards shall be allowed in the locations set forth in Table 54-1.

(ORD-14-0006 § 1, 2014)

21.54.119 Restricted to certain street classification types.

Billboards shall only be located on lots abutting certain classifications of public right-of-way, as set forth in Table 54-1.
(ORD-14-0006 § 1, 2014)

21.54.120 Locations prohibited.

A. General.

No new off-premises sign (billboard) shall be located:

1. On or over a public right-of-way;

2. Within ninety feet (90') of any residential, institutional or park district;

3. Within any Planned Development District (PD), unless explicitly allowed by that PD ordinance;

4. On the roof of any building whether the building is in use or not;

5. On a wall of a building or otherwise attached or integrated to, or suspended from a building, unless explicitly approved by the Site Plan Review Committee and the Planning Commission;

6. Overhanging a building; or

7. Within eight feet (8'), in any direction, of a building, measured at the nearest distance between the sign surface or structure and the building, so as not to provide an attractive nuisance for graffiti and vandalism.

B. Additional restrictions for freeway-oriented billboards.

In addition to the above restrictions, no new freeway-oriented off-premises sign (billboard) shall be placed or maintained:

1. Within three hundred feet (300') of any residential, institutional or park district;

2. Within six hundred sixty feet (660') of a section of a freeway that has been landscaped, if the advertising display is designed to be viewed primarily by persons traveling on the main-traveled way of the landscaped freeway (see "Adjacent," Subsection 21.54.020.D), unless otherwise authorized by the Outdoor Advertising Act and/or Caltrans regulations. This shall include the following landscaped freeway sections:

a. 710 Freeway:

(1) North City boundary to south side of interchange with 91;

(2) South of interchange with 91 to south side of northbound Long Beach Boulevard off-ramp on east side of freeway only;

(3) South of north edge of southbound Del Amo Avenue off-ramp to south edge of northbound Del Amo Avenue off-ramp;

(4) North edge of southbound transition ramp to 405 Freeway to south edge of the 405 to 710 southbound transition ramp on west side of 710;

(5) North edge of 405 to 710 transition ramp to south edge of northbound Pacific Coast Highway off-ramp on east side;

(6) North edge of southbound Willow Street off-ramp to south edge of southbound Willow Street on-ramp on west side of 710;

(7) North edge of southbound Anaheim Street off-ramp to center line of Anaheim Street;

(8) South of Fifth Street.

b. 91 Freeway:

(1) West City boundary to east edge of eastbound Long Beach Boulevard on-ramp;

(2) Western edge of 710 Freeway right-of-way to eastern City boundary;

c. 405 Freeway—Entire length in City;

d. 605 Freeway—Entire length in City;

e. 22 Freeway—Entire length in City.

(ORD-16-0007 § 1, 2016; ORD-14-0006 § 1, 2014)

21.54.125 Types of billboards prohibited.

As set forth in Section 21.54.110, any type or location of billboard development not specifically permitted by this Chapter shall be prohibited. Additionally, the following types of prohibited billboards are specified for clarity. However, this shall not limit the types of prohibited billboards to those described below:

A. Mobile billboards. Any billboard installed upon, mounted, attached, or applied to any vehicle, non-motorized vehicle, bicycle, scooter, or trailer whose primary purpose is conveyance, transportation, or support of the billboard message surface shall be prohibited from any display or placement on public or private property or the public right-of-way in a manner making it visible from any other public or private property or the public right-of-way;

B. Any billboard integrated, incorporated, or otherwise included into the architectural design of a building, unless explicitly approved by the Site Plan Review Committee and Planning Commission, or otherwise approved as part of a lease agreement entered into with the City prior to January 1, 2014; and

C. Supergraphics. Any off-site advertisement meeting the definition of "supergraphic" as defined in Section 21.15.2980 shall be prohibited. The only exception shall be for a temporary supergraphic allowed under a special events permit.

(ORD-14-0006 § 1, 2014)

21.54.130 Landscaped segment relocation credits.

A. No new billboard shall be constructed or installed within the City through utilization of credits given by the California Department of Transportation or the Outdoor Advertising Act for relocation of billboards located in landscaped freeway segments, unless authorized by the Outdoor Advertising Act and/or Caltrans regulations. In the case that the Outdoor Advertising Act and/or Caltrans regulations authorize the City to permit construction of a new billboard using such credits, the removal requirements of Subsections 21.54.160.A or B shall apply, unless preempted by the Outdoor Advertising Act, or unless the conversion is the subject of a development agreement, in which case the provisions of Section 21.54.112 (Development Agreements) shall apply.

B. Conversion of existing billboards located in landscaped freeway segments to electronic billboards using such credits shall be allowed, and in this case the removal requirements of Subsection 21.54.160.A or B shall apply, unless preempted by the Outdoor Advertising Act, or unless the conversion is the subject of a development agreement, in which case the provisions of Section 21.54.112 (Development Agreements) shall apply.

(ORD-16-0007 § 2, 2016; ORD-14-0006 § 1, 2014)

21.54.140 Conversion of non-electronic billboards to electronic.

The City hereby declares that the vested rights held by existing billboards, whether conforming or nonconforming to this Chapter, do not allow conversion of said billboards to electronic billboards as a matter of right. No existing billboard shall be converted to an electronic billboard unless the following conditions are met:

A. A Conditional Use Permit is obtained by the applicant;

B. The billboard meets the requirements of Table 54-1;

C. The applicant obtains all required building permits; and

D. Other existing billboard display surface area is permanently removed from the City as required by Subsection 21.54.160.A or B, as applicable.

(ORD-14-0006 § 1, 2014)

21.54.150 Expansion of billboard area or addition of faces to existing billboards.

The City hereby declares that the vested rights held by existing billboards, whether conforming or nonconforming to this Chapter, do not allow expansion of billboard area or addition of billboard faces as a matter of right. No billboard shall have its area increased or have an additional face added unless the following conditions are met:

A. A Conditional Use Permit is obtained by the applicant;

B. The billboard meets the requirements of Table 54-1;

C. The applicant obtains all required building permits; and

D. Other existing billboard display surface area is permanently removed from the City as required by Subsection 21.54.160.A or B, as applicable.

(ORD-14-0006 § 1, 2014)

21.54.160 Citywide billboard capacity limited.

The City of Long Beach finds that, at the time of adoption of this Chapter, a plenitude of modes of advertising were available via television, newspaper, magazines, circulars, direct mail, bulk mail, internet, email, mobile phones, City bus ads, bus stop posters, and other constantly-developing sources of ad placement. Also, the City finds that a sufficient or more than sufficient amount of billboard advertising capacity exists in the City to meet or exceed the community's need for outdoor advertising, and that a reduction in the amount of billboards Citywide will not impose any hardship upon the community through diminution of overall advertising capacity or options. Therefore, no building permit shall be issued for any new billboard, conversion of an existing non-electronic billboard to an electronic billboard, or expansion or addition of faces to an existing billboard, unless the following requirements are met:

A. An existing nonconforming billboard or billboards (as specified in Section 21.54.170) shall first be permanently removed from within the City as set forth in Table 54-2.

1. Nonconforming billboards shall be removed with the following priority, in order of highest priority to lowest:

a. Nonconforming billboards located in a residential zoning district and not adjacent to a street classified as a Freeway, Regional Corridor, or Major Arterial;

b. Nonconforming billboards located in a Planned Development District (or a subarea thereof) allowing residential uses and not adjacent to a street classified as a Freeway, Regional Corridor, or Major Arterial;

c. All other nonconforming billboards located in a residential zoning district or Planned Development District allowing residential uses;

d. All other nonconforming billboards located in a General Plan Land Use District allowing residential uses; and

e. All other nonconforming billboards.

2. Nonconforming billboards with more than one face shall be removed in their entirety and shall not be altered or partially dismantled in such a way as to leave behind one or more faces or portion(s) thereof.

B. If existing nonconforming billboards are permanently removed to satisfy Subsection 21.54.160.A, until no such nonconforming billboards (as specified in Section 21.54.170) remain in the City, then

existing billboard area shall first be permanently removed from within the City as set forth in Table 54-3. It shall be the responsibility of the applicant to demonstrate, to the satisfaction of the Director of Development Services, that no nonconforming billboards remain in the City.

C. In determining the existing display surface area to be removed to satisfy Subsection A or B above, if a billboard with more than one face is proposed, the sum of both faces shall be used. For example, if a billboard with two (2) three hundred (300) square-foot faces is proposed, a sum of six hundred (600) square feet shall be used to calculate the amount of removal required.

D. In all cases, the required removals shall be completed in accordance with one of the two (2) following alternatives:

1. The required removals shall be completed prior to issuance of a building permit for the new, converted, expanded or otherwise altered billboard; or

2. The Applicant shall, as part of the Conditional Use Permit approval process, provide a cash bond or equivalent financial instrument to the satisfaction of the Director of Financial Management, in an amount as determined by the Planning Commission to reasonably insure the prompt removal of billboards in accordance with this Section.

   Regardless of the alternative selected, the applicant shall provide a list of all billboards to be removed to meet the removal requirements of Subsection 21.54.160.A or B, and shall obtain a separate demolition permit for each. In order that the applicant should not be subject to possible loss of development rights lawfully obtained through a Conditional Use Permit and performance of the required removal of billboards, said development rights, once obtained, shall be considered vested for one (1) year from the date of final action of the Conditional Use Permit or the date of execution of the development agreement by the City.

E. Fractional numbers and removal. The purpose of Subsections A and B above, is to require removal of a certain amount of billboard display surface area, rather than a specific number of billboards. However, it is not desirable for an existing billboard to be altered to reduce its size to comply with these requirements, due to the negative aesthetic impacts such alteration may create. Therefore, no billboard shall be reduced in size or otherwise altered to provide for the required removal, and only whole, entire billboard(s) shall be removed. In no case shall less than the required amount of display surface area be removed.

F. Ownership. Subsection 21.54.160.B shall not come into effect until all nonconforming billboards (as specified in Section 21.54.170) are removed from within the City, regardless of the ownership or management of those nonconforming billboards. Specifically, a party owning or managing billboards shall not be eligible for Subsection 21.54.160.B if only the nonconforming billboards owned or managed by that party are removed, while other nonconforming billboards yet remain in the City.

G. Other removal. Any billboard removed or demolished from within the City, or reduced in size, not in conjunction with a project requiring removal under Subsections 21.54.160.A or B, shall not be credited toward the removal requirements of Subsections 21.54.160.A or B above.

(ORD-14-0006 § 1, 2014)

21.54.170 Nonconformity defined for purposes of removal requirements.

A billboard shall be considered nonconforming for the purposes of the removal requirements set forth in Section 21.54.160, if it is any of the following:

A. Not located in a zoning district allowed by Table 54-1;

B. Not located adjacent to a freeway or street having a street classification type allowed in Table 54-1;

C. Located on a building or building rooftop.

Table 54-1
Billboard Development Standards

	Standard				
Type of Billboard	**Maximum Area (sq. ft.)**	**Max. Height**	**Spacing between billboards [a]**	**Street Classification Types Allowed [b]**	**Zoning Districts Allowed**
1. New freeway-oriented billboard, electronic or non-electronic	675 sq. ft.	50 ft. above nearest freeway lane	As required by California Department of Transportation, otherwise 500 ft.	Freeway, Regional Corridor, or Major Arterial [c][d]	CHW[e], CS, IL, IM, IG, IP [f]
2. Non-freeway-oriented new billboard, electronic or non-electronic	675 sq. ft.	35 ft. above curb grade	As required by California Department of Transportation, otherwise 300 ft.	Regional Corridor, or Major Arterial only [c][d]	CHW [e], IL, IM, IG, IP [f]
3. Conversion of existing billboard to electronic (with or without expansion of area)	675 sq. ft. [g]	No higher than existing billboard, or 35 ft. above curb grade (or 40 ft. above nearest freeway lane, if freeway-oriented), whichever is greater	As required by California Department of Transportation, otherwise no limit	Freeway Regional Corridor, or Major Arterial only [c]	CCA, CCP, CHW [e], CS, IL, IM, IG, IP [f], PR
4. Expansion of existing electronic or non-electronic billboard (does not include conversion to electronic)	675 sq. ft. [g]	No higher than existing billboard, or 35 ft. above curb grade (or 40 ft. above nearest freeway lane, if freeway-oriented), whichever is greater	N/A	Freeway, Regional Corridor, or Major Arterial only[c]	CCA, CCP, CHW [e], CS, IL, IM, IG, IP [f]

Footnotes:

(a) Required spacing between billboards on same side of the right-of-way, whether electronic or non-electronic.

(b) Street classifications are as shown on the Functional Classification of Streets map in the Transportation Element of the General Plan. See equivalence table (Table 54-1A) for updated designations adopted into the 2013 General Plan Mobility Element.

(c) If a lot has frontage on a right-of-way that is a Freeway, Regional Corridor, or Major Arterial, and on a street that is not a Freeway, Regional Corridor, or Major Arterial, the billboard shall be located no more than 25 feet from the property line with frontage on a Freeway, Regional Corridor, or Major Arterial.

(d) Any billboard adjacent to a freeway right-of-way, but not freeway-oriented and not adjacent to a Regional Corridor or Major Arterial, shall be prohibited.

(e) Also allowed in the obsolete CH commercial highway zoning district.

(f) Billboards in the IP zoning district shall require approval of the Harbor Department.

(g) Size shall not be increased over that of the existing billboard unless explicitly approved by the Planning Commission.

Table 54-1A
Equivalence of Street Classification Type Designations

1991 General Plan Transportation Element Street Classification Type Designation	2013 General Plan Mobility Element Street Classification Type Designation
Freeway	Freeway
Regional Corridor	Regional Corridor
	Boulevard
Major Arterial	Major Avenue
Minor Arterial	Minor Avenue
Collector Street	Neighborhood Connector
Local Street	Local Street

Table 54-2
Billboard Removal Ratios for Nonconforming Billboards

Under Subsection 21.54.160.A (If any nonconforming billboards as set forth in Section 21.54.170 are still present in City)	
Project	**Required Removal Ratio [a]**
1. New electronic billboard	8 times the area of the proposed billboard [b]
2. New non-electronic billboard	6 times the area of the proposed billboard [b]
3. Conversion of existing billboard to electronic with no expansion of area	4 times the area of the billboard to be converted [b]
4. Conversion of existing billboard to electronic with expansion of area	8 times the area of the final size of the proposed billboard [b]
5. Expansion of existing electronic billboard	8 times the area of the proposed net increase in area [b]
6. Expansion of existing non-electronic billboard	6 times the area of the proposed net increase in area [b]

Footnotes:

a) See Subsection 21.54.112.G for required removal for Development Agreements.

b) At a minimum. However, in order to comply with Subsection 21.54.160.E, only whole billboards shall be removed.

Table 54-3
Billboard Removal Ratios for Conforming Billboards

Under Subsection 21.54.160.B (After all nonconforming billboards as set forth in Section 21.54.170 have been removed from City)	
Project	**Required Removal Ratio [a]**
1. New electronic or non-electronic billboard	Area equal to the proposed billboard [b]
2. Conversion of existing billboard to electronic	Area equal to the proposed billboard [b]
3. Any other expansion or modification of an existing billboard (electronic or non-electronic)	Area equal to the proposed net increase [b]

Footnotes:

a) See Subsection 21.54.112.G for required removal for Development Agreements.

b) At a minimum. However, in order to comply with Subsection 21.54.160.E, only whole billboards shall be removed.
(ORD-16-0007 § 3, 2016; ORD-14-0006 § 1, 2014)

DIVISION II.

DEVELOPMENT STANDARDS

21.54.210 Maximum area.

The maximum area of billboards shall be as indicated in Table 54-1.
(ORD-14-0006 § 1, 2014)

21.54.220 Maximum height.

The maximum height of billboards shall be as indicated in Table 54-1.
(ORD-14-0006 § 1, 2014)

21.54.221 Maximum number of faces.

No billboard shall have more than two (2) faces. A face shall be considered the display surface upon which an advertising message is displayed.
(ORD-14-0006 § 1, 2014)

21.54.222 Face orientation.

No billboard shall have more than one (1) face (display surface) oriented in the same vertical plane.
(ORD-14-0006 § 1, 2014)

21.54.223 Name of owner.

No billboard shall be maintained in the City unless the name of the person or company owning or maintaining it is plainly displayed thereon.
(ORD-14-0006 § 1, 2014)

21.54.230 Spacing.

Spacing between billboards on the same side of a right-of-way shall be as indicated in Table 54-1. For spacing purposes, any double-faced, V-type, or back-to-back billboard with more than one (1) face (display surface) shall be considered as a single billboard.
(ORD-14-0006 § 1, 2014)

21.54.240 Supports.

Billboards shall be provided with no more than one (1) support, and the support shall be constructed of steel. The support shall be architecturally treated to the satisfaction of the Planning Commission. At a minimum, unpainted steel structural supports and wood structural supports shall be prohibited.
(ORD-14-0006 § 1, 2014)

21.54.250 Lighting.

In order to decrease the negative effects of light pollution, illumination for non-electronic billboards shall be designed, aimed, and shielded if necessary so that all light falls on the billboard display surface, and light trespass into the night sky or onto adjacent private or public property is prevented. All service wiring shall be underground. Prior to issuance of a building permit, the applicant shall provide proof to the satisfaction of the Director of Development Services that this requirement is met. It shall be the responsibility of the applicant or owner to develop and maintain the billboard lighting system in compliance with this Section.

(ORD-14-0006 § 1, 2014)

21.54.260 Clearance.

A. **Driveways.** Billboards projecting over a driveway or driving aisle shall have a minimum clearance of sixteen feet (16') between the lowest point of the sign and the driveway grade.

B. **Pedestrian Walkway.** Billboards projecting over a pedestrian walkway shall have a minimum clearance of eight feet (8') between the lowest point of the sign and the walkway grade.

C. **All Others.** All other billboards shall have a minimum clearance of eight feet (8') between the lowest point of the sign and ground level so as not to provide an attractive nuisance for graffiti and vandalism.

(ORD-14-0006 § 1, 2014)

21.54.265 Projection.

No billboard shall project over a public sidewalk unless an encroachment permit is granted by the Department of Public Works. In all cases, a billboard shall be a minimum of two feet (2') away from the curb. No billboard shall project over a public alley.

(ORD-14-0006 § 1, 2014)

21.54.270 Screening.

All back or rear portions of single-faced and V-type billboards visible from a public right-of-way or other public or private property shall be screened. The screening shall cover all structural members of the sign, not including the pole supports, and shall additionally cover all electrical or electronic display equipment, and any associated antennas, cables, and other appurtenances.

(ORD-14-0006 § 1, 2014)

21.54.280 Design and brightness restrictions.

A. Billboards shall not contain any of the following:

1. Moving parts;

2. Appendages, cut-out letters or figures that exceed twenty percent (20%) of the permitted sign area or that protrude more than twelve inches (12") beyond the flat surface of the sign face;

3. Lights that flash, shimmer, glitter or give the appearance of flashing, shimmering or glittering. Exceptions to this restriction include time, temperature and smog index units, provided the frequency of change does not exceed four (4) second intervals;

4. Walls or screens at the base of the sign which create a hazard to public safety or provide an attractive nuisance;

5. Copy which simulates any traffic sign in a manner which confuses the public; or

6. Devices which emit audible sound, or odor or particulate matter.

B. For electronic billboards, the following restrictions also shall apply:

1. The duration of each message displayed shall be at least eight (8) seconds;

2. No message shall move, flash, shimmer, glitter, or give the appearance of moving, flashing, shimmering or glittering;

3. There shall be a direct change from each message to the next, with no blank or dark interval in between, to avoid a flashing or blinking effect;

4. Display of any form of motion or apparent motion within the message, and any form of video, are prohibited;

5. Any sign area not comprising the electronic display panel is prohibited. This includes, but is not limited to, static sign area, appendages, cut-out letters, and figures. A frame surrounding the display panel up to twelve (12) inches in width shall be permitted, and shall not contain any sign copy or graphics, and shall not count toward the sign area;

6. The brightness of the display surface shall be limited as follows:

   a. **Dawn to dusk:** unlimited;

   b. **Dusk to dawn:** the display surface shall not produce luminance in excess of 0.3 foot-candles above ambient light conditions, or the level recommended by the Illuminating Engineering Society of North America (IESNA) for the specific size and location of the billboard, whichever is less. Measurement of luminance shall be carried out in accordance with established scientific methods and industry standards, specifically IESNA TM-11-00, or a successive IESNA technical publication.

7. The display brightness shall be controlled by a photocell or light sensor that adjusts the brightness to the required dusk-to-dawn level based on ambient light conditions without the need for human input. Use of other brightness adjustment methods, such as timer- or calendar-based systems, shall only be used as a backup system;

8. The display shall be factory-certified as capable of complying with the above brightness standards. Such certification shall be provided to the satisfaction of the Director of Development Services;

9. The billboard owner shall provide to the City, upon request, certification by an independent contractor that the brightness levels of the electronic billboard are in compliance with the requirements of this Section;

10. All electronic billboards shall be oriented, and adequately shielded if necessary, so as to prevent the trespass of light and glare upon any residential land uses, including those in mixed-use districts, as existed on the date of building permit issuance; and

11. All electronic billboards shall be equipped with a control system that, in the event of a display or control malfunction, "freezes" the display on either a single, unchanging message, or a blank screen.

(ORD-14-0006, § 1, 2014)

21.54.285 Additional requirements.

Prior to issuance of a building permit for any billboard project subject to the requirements of this Chapter, the applicant shall provide the following:

A. The telephone number of a maintenance service, to be available twenty-four (24) hours a day, to be contacted in the event that a billboard becomes dilapidated or damaged, or malfunctions in the case of electronic billboards;

B. Proof of lease demonstrating a right to install the billboard on the subject property;

C. A list and map of locations of all billboards in the City owned or managed by the entity that will own or manage the subject billboard, to the satisfaction of the Director of Development Services. This information also shall be provided on a map. The intent of this requirement is to facilitate analysis of the proposed billboard's compliance with the spacing and location requirements, as well as the nonconforming billboard removal requirements of this Chapter.

(ORD-14-0006, § 1, 2014)

21.54.290 Maintenance.

All billboard structures shall be maintained in a neat, clean, and orderly condition. Any structure which is highly rusted, has peeling paint or sign copy, or in any other way appears unattractive or in disrepair shall be deemed in violation of this Chapter and shall be removed or repaired in accordance with the provisions of this Chapter. Any structure which the City Engineer or Building Official identifies as an immediate threat to public safety may be removed by the City Engineer or Building Official, or his designee, without notice to the property owner and at the property owner's expense.

(ORD-14-0006, § 1, 2014)

DIVISION III.

ABANDONED AND ILLEGAL BILLBOARDS

21.54.310 Abandoned billboards.

Any billboard meeting the definition of abandoned in this Title (Section 21.15.030 "Abandoned"), and which can, under the applicable provisions of the Outdoor Advertising Act, be considered abandoned

and having no rights to remain, shall be removed immediately at the expense of either the billboard owner or property owner. Where consistent with the Outdoor Advertising Act, the City Manager or his designee shall have the authority to enter onto private property and cause such removal, and recover the costs of said removal from the property owner.
(ORD-14-0006 § 1, 2014)

21.54.320 Illegal billboards.

Illegal billboards shall have no vested rights under the Long Beach Municipal Code. Illegal billboards shall either be brought into legal conforming status, or removed by the owner immediately, subject to any applicable restrictions in the Outdoor Advertising Act. Where consistent with the Outdoor Advertising Act, the City Manager or his designee shall have the authority to enter onto private property and cause such removal, and recover the costs of said removal from the property owner.
(ORD-14-0006 § 1, 2014)

DIVISION IV.

NONCONFORMING BILLBOARDS

21.54.410 Amortization of nonconforming billboards.

It is the intent of this Chapter to require the eventual elimination of existing billboards which do not conform to the provisions of this Chapter, as allowed by the Outdoor Advertising Act. It is also the intent of this Chapter to ensure that the elimination of nonconforming billboards occurs as expeditiously and fairly as possible and avoids any unreasonable invasion of established property rights. Therefore an amortization program is established as allowed under the Outdoor Advertising Act (Section 5412 et seq., of California Business and Professions Code).
(ORD-14-0006 § 1, 2014)

21.54.420 Removal by amortization.

A. A nonconforming billboard shall be removed if the billboard meets the criteria set forth in Subsection 21.54.420.B. Any billboard meeting these criteria is allowed to remain in existence seven (7) years after notice to remove nonconforming billboard has been issued, in order that the value of the billboard may be amortized. The adoption of this Section and Chapter shall not have the effect of extending the time in which a billboard shall be removed if written notice of removal was given prior to the effective date of this Section and Chapter.

B. Criteria. A billboard shall be removed if:

1. The billboard is located within an area identified as residential on the general plan land use map; and

2. The billboard is located within an area zoned for residential use.
(ORD-14-0006 § 1, 2014)

21.54.430 Continuation of use.

Subject to the removal requirements set forth in Section 21.54.420, a nonconforming billboard use may be continued and change of billboard copy shall not be prohibited, provided that:

A. The billboard, including copy, is maintained in good repair; and

B. The billboard is not enlarged, and additional faces are not erected on the billboard structure.
(ORD-14-0006 § 1, 2014)

21.54.440 Repair.

A legal nonconforming billboard may be repaired, provided that: a building permit is obtained for the repair.
(ORD-14-0006 § 1, 2014)

21.54.450 Nonconforming billboards—Replacement.

Catastrophic Damage. A nonconforming off-premises sign which is damaged by accident, storm, earthquake, other forces of nature, fire or act of vandalism, sabotage or warfare to an extent too great to be repaired shall not be replaced at a site where it is a nonconforming use, but may be relocated to a site where it is a conforming use, subject to the following:

A. The billboard shall be of the same size or smaller, with the same number of faces or fewer, and the billboard shall not be an electronic billboard if the destroyed billboard was not an electronic billboard. A conditional use permit shall be required in accordance with Section 21.54.111, and the removal requirements of Section 21.54.160 shall apply, if the replacement does not comply with this Subsection;

B. All development standards of this Chapter and Title shall be met, excepting the conditional use permit requirements of Section 21.54.111, and the removal requirements of Section 21.54.160;

C. A building permit shall be obtained;

D. In cases of uncertainty as to the extent of damage to the billboard, the Long Beach Building Official shall be authorized to determine if the billboard is catastrophically damaged; and

E. It shall be the responsibility of the billboard owner or the property owner to remove the catastrophically damaged billboard within ten (10) days of the date of catastrophic damage.
(ORD-14-0006 § 1, 2014)

CHAPTER 21.56 WIRELESS TELECOMMUNICATIONS FACILITIES*

21.56.010 Purpose and objectives.

The purpose of this Chapter is to regulate the establishment and operation of Wireless Telecommunications Facilities within the City of Long Beach, consistent with the General Plan, and with the intent to:

A. Allow for the provision of wireless communications services adequate to serve the public's interest within the City;

B. Require, where feasible and consistent with the City's aesthetic and planning objectives, the co-location of Wireless Telecommunications Facilities;

C. Minimize the negative aesthetic impact of Wireless Telecommunications Facilities, establish a fair and efficient process for review and approval of applications, assure an integrated, comprehensive review of environmental impacts of such facilities, and protect the health, safety and welfare of the City of Long Beach;

D. Strongly encourage the location of Wireless Telecommunications Facilities in those areas of the City where the adverse aesthetic impact on the community is minimal;

E. Strongly encourage wireless telecommunications providers to configure all facilities in such a way that minimizes displeasing aesthetics through careful design, siting, landscaping, screening, and innovative camouflaging techniques;

F. Enhance the ability of the providers of telecommunications services to provide such services to the City quickly, effectively, and efficiently; and

G. Conform to all applicable federal and State laws.

(ORD-18-0012 § 1, 2018)

21.56.020 Definitions.

In addition to all those terms defined in Chapter 21.15 of the Zoning Regulations, the following terms shall have the meanings set forth below, for the purposes of this Chapter:

A. "Abandoned." Notwithstanding the definition of "abandoned" in Section 21.15.030, a Wireless Telecommunications Facility use shall be considered abandoned if it is not in use for six (6) consecutive months.

B. "Applicable Law" means all applicable federal, state, and City laws, ordinances, codes, rules, regulations and orders, as the same may be amended or adopted from time to time.

***Editor's note**—ORD-18-0012 § 1, adopted May 1, 2018, amended Ch. 21.56 in its entirety to read as herein set out. Former Ch. 21.56, §§ 21.56.010—21.56.160, pertained to similar subject matter, and derived from: ORD-11-0011 § 8, 2011; and ORD-17-0008, § 1, adopted May 2, 2017.

C. "Co-location" means the placement or installation of Wireless Telecommunications Facilities, including antennas and related equipment onto an existing Wireless Telecommunications Facility in the case of monopoles, or onto the same building in the case of roof/building-mounted sites.

D. "Co-location facility" means a Wireless Telecommunications Facility that has been co-located consistent with the meaning of "co-location" as defined above. It does not include the initial installation of a new Wireless Telecommunications Facility where previously there was none, nor the construction of an additional monopole on a site with an existing monopole.

E. "Monopole" means any single freestanding pole structure used to support wireless telecommunications antennas or equipment at a height above the ground. This includes those poles camouflaged to resemble natural objects.

F. "Public right-of-way" means any public highway, street, alley, sidewalk, parkway, and all extensions or additions thereto which is either owned, operated, or controlled by the City, or is subject to an easement or dedication to the City, or is a privately owned area within City's jurisdiction which is not yet dedicated, but is designated as a proposed public right-of-way on a tentative subdivision map approved by the City.

G. "Residential/Institutional Planned Development (PD) District" means the following Planned Development Districts within the City of Long Beach: PD-5 (Ocean Boulevard), PD-10 (Willmore City), PD-11 (Rancho Estates), PD-17 (Alamitos Land), PD-20 (All Souls), and PD-25 (Atlantic Avenue), as well as any future PDs designated as such in the PD Ordinance.

H. "Roof/building-mounted site" means any Wireless Telecommunications Facility, and any appurtenant equipment, located on a rooftop or building, having no support structure such as a monopole or other type of tower.

I. "Wireless Telecommunications Facility" means equipment installed for the purpose of providing wireless transmission of voice, data, images, or other information including but not limited to, cellular telephone service, personal communications services, and paging services, consisting of equipment, antennas, and network components such as towers, utility poles, transmitters, base stations, conduits, pull boxes, electrical meters, and emergency power systems. "Wireless Telecommunications Facility" does not include radio or television broadcast facilities, nor radio communications systems for government or emergency services agencies.

(ORD-18-0012 § 1, 2018)

21.56.030 Permit requirements for new Wireless Telecommunications Facilities.

All new Wireless Telecommunications Facilities shall meet the following standards and requirements:

A. Locations outside the public right-of-way. A Conditional Use Permit shall be required for the initial construction and installation of all new Wireless Telecommunications Facilities that are not co-location facilities and are outside the public right-of-way, in accordance with all Specific Procedures set forth in Chapter 21.21 and Chapter 21.25, Division II, of the Zoning Regulations, except as modified by this Chapter.

B. Roof/building-mounted facilities. All new Wireless Telecommunications Facilities that are not co-location facilities that are roof/building-mounted facilities shall also be subject to Site Plan Review in addition to the Conditional Use Permit requirement in Subsection 21.56.030.A.

C. Locations in the public right-of-way. A Wireless Right-of-Way Facility Permit shall be required for the initial construction and installation of all new Wireless Telecommunications Facilities in accordance with all procedures set forth in Chapter 15.34. In the coastal zone, a Coastal Development Permit may be required for new Wireless Telecommunications Facilities development in accordance with all procedures set forth in Division IX of Chapter 21.25.

(ORD-20-0025 § 12, 2020; ORD-18-0012 § 1, 2018)

21.56.040 Development and design standards for new Wireless Telecommunications Facilities that are not co-location facilities.

All new Wireless Telecommunications Facilities shall meet the following minimum standards:

A. Location. New Wireless Telecommunications Facilities shall not be located in Residential (R) or Institutional (I) zoning districts, or Residential/Institutional Planned Development (PD) Districts, unless the applicant demonstrates, by a preponderance of evidence, that a review has been conducted of other options with less environmental impact, and no other sites or combination of sites allows feasible service or adequate capacity and coverage. This review shall include, but is not limited to, identification of alternative site(s) within a one (1) mile radius of the proposed facility. See Section 21.56.050 for additional application requirements;

B. Co-location required where possible. New Wireless Telecommunications Facilities shall not be located in areas where co-location on existing facilities would provide equivalent coverage, network capacity, and service quality with less environmental or aesthetic impact;

C. Accommodation of co-location. Except where aesthetically inappropriate in the determination of the Staff Site Plan Review Committee, new Wireless Telecommunications Facilities shall be constructed so as to accommodate co-location, and must be made available for co-location unless technologically infeasible. In cases where technological infeasibility is claimed, it shall be the responsibility of the party making such claim to demonstrate, by a preponderance of evidence, that such co-location is, in fact, infeasible;

D. Additional development and design standards. Wireless Telecommunications Facilities also shall be subject to the additional design standards specified in Section 21.56.100.

(ORD-18-0012 § 1, 2018)

21.56.050 Application requirements for new Wireless Telecommunications Facilities that are not co-location facilities.

In addition to the requirements set forth in Section 21.21.201 of the Zoning Regulations and Chapter 21.25 (Specific Procedures) of the Zoning Regulations, applicants for new Wireless Telecommunications Facilities shall submit the following materials regarding the proposed Wireless Telecommunications Facility:

A. Photo simulations. Photo simulations of the facility from reasonable line-of-sight locations from public roads or viewpoints;

B. Maintenance plan. A maintenance plan detailing the type and frequency of required maintenance activities, including maintenance of landscaping and camouflaging, if applicable;

C. Five year build-out plan. A description of the planned maximum five (5) year build-out of the site for the applicant's Wireless Telecommunications Facilities, including, to the extent possible, the full extent of Wireless Telecommunications Facility expansion associated with future co-location facilities by other wireless service providers. The applicant shall use best efforts to contact all other wireless service providers known to be operating in the City upon the date of application, to determine the demand for future co-locations at the proposed site, and, to the extent feasible, shall provide written evidence that these consultations have taken place, and a summary of the results, at the time of application. The City shall, within thirty (30) days of its receipt of an application, identify any known wireless service providers that the applicant has failed to contact and with whom the applicant must undertake their best efforts to fulfill the above consultation and documentation requirements. The location, footprint, maximum tower height, and general arrangement of future co-locations shall be identified by the five (5) year build-out plan. If future co-locations are not technically feasible, a written explanation shall be provided;

D. Nearby facilities. Identification of existing Wireless Telecommunications Facilities within a one (1) mile radius of the proposed location of the new Wireless Telecommunications Facility, and an explanation of why co-location on these existing facilities, if any, is not feasible. This explanation shall include such technical information and other justifications as are necessary to document the reasons why co-location is not a viable option. The applicant shall provide a list of all existing structures considered as alternatives to the proposed location. The applicant shall also provide a written explanation for why the alternatives considered were either unacceptable or infeasible. If an existing Wireless Telecommunications Facility was listed among the alternatives, the applicant must specifically address why the modification of such Wireless Telecommunications Facility is not a viable option. The written explanation shall also state the radio frequency coverage and capacity needs and objectives of the applicant, and shall include maps of existing coverage and predicted new coverage with the proposed facility;

E. Availability for co-location. A statement that the proposed Wireless Telecommunications Facility is available for co-location, or an explanation of why future co-location is not technically feasible;

F. RF report. A radio frequency (RF) report describing the emissions of the proposed Wireless Telecommunications Facility. The report shall demonstrate that the emissions from the proposed equipment as well as the cumulative emissions from the facility will not exceed the limits established by the Federal Communications Commission (FCC);

G. Alternative analysis. Applications for the establishment of new Wireless Telecommunications Facilities inside Residential (R) or Institutional (I) zoning districts, Residential/Institutional Planned Development (PD) Districts, and residential or institutional General Plan Land Use Districts (LUDs) shall be accompanied by a detailed alternatives analysis that demonstrates that there are no feasible alternative nonresidential, non-institutional sites or combination of nonresidential, non-institutional sites available to eliminate or substantially reduce significant gaps in the applicant service provider's coverage or network capacity;

H. Height justification. An engineering certification providing technical data sufficient to justify the proposed height of any new monopole or roof/building-mounted site;

I. Deposit. A cash or other sufficient deposit for a third party peer review as required by this Chapter.

(ORD-18-0012 § 1, 2018)

21.56.060 Entitlement, term, renewal and expiration.

A. Conditional Use Permits and other entitlements for Wireless Telecommunications Facilities, including approval of the five (5) year build-out plan as specified in Subsection 21.56.050.C, shall be valid for ten (10) years following the date of final action. A ten (10)-year term is prescribed for Conditional Use Permits for this class of land uses due to the unique nature of development, exceptional potential for visual and aesthetic impacts, and the rapidly changing technologic aspects that differentiate wireless telecommunications from other Conditional land uses allowed by the City. The applicant or operator shall file for a renewal for the entitlement and pay the applicable renewal application fees six (6) months prior to expiration of the permit with the Department of Development Services, if continuation of the use is desired. In addition to providing the standard information and application fees required for renewal, Wireless Telecommunications Facility renewal applications shall provide an updated build-out description prepared in accordance with the procedures established by Subsection 21.56.050.C.

B. Where required, renewals for entitlements for existing Wireless Telecommunications Facilities and co-location facilities constructed prior to the effective date of this Chapter are subject to the provisions of Sections 21.56.030 through 21.56.050. Renewals of entitlements approved after the effective date of this Chapter shall only be approved if all conditions of the original entitlement have been satisfied, and the five (5) year build-out plan has been provided.

C. If the entitlement for an existing Wireless Telecommunications Facility has expired, applications for modification, expansion, or co-location at that site, as well as after-the-fact renewals of entitlements for the existing Wireless Telecommunications Facilities, shall be subject to the standards and procedures for new Wireless Telecommunications Facilities set forth in Sections 21.56.030 through 21.56.050.

(ORD-18-0012 § 1, 2018)

21.56.070 Permit requirements for co-location facilities.

A. Co-location facilities requiring a Conditional Use Permit. Applications for co-location will be subject to the standards and procedures set forth for new Wireless Telecommunications Facilities, above (Sections 21.56.030 through 21.56.060), if any of the following apply:

1. No Conditional Use Permit was issued for the original Wireless Telecommunications Facility;

2. The Conditional Use Permit for the original Wireless Telecommunications Facility did not allow for future co-location facilities or the extent of site improvements involved with the co-location

project (in this case, an application for a modification to the approved Conditional Use Permit, subject to Planning Commission review, may be substituted for a new Conditional Use Permit); or

3. No environmental review was completed for the location of the original Wireless Telecommunications Facility that addressed the environmental impacts of future co-location facilities (in this case, an application for a modification to the approved Conditional Use Permit, subject to Planning Commission review, may be substituted for a new Conditional Use Permit).

B. Permit requirements for other co-location facilities.

1. Roof/building-mounted facilities with visible exterior changes. Roof/building-mounted co-location facilities proposing visible exterior changes to the site shall be subject to Site Plan Review.

2. All others. Applications for all other co-location facilities shall be subject to a building permit approval. Prior to filing an application for a building permit for co-location, the applicant shall demonstrate compliance with the conditions of approval, if any, of the original Conditional Use Permit, and with all applicable provisions of this Chapter, by submitting an application to the Department of Development Services for an administrative review as set forth in Section 21.56.090. The applicant shall not file an application for a building permit until the applicant receives written notification that this administrative review is complete and approved. The applicant shall pay a fee for this administrative review in the amount adopted by the City Council in a resolution.

(ORD-18-0012 § 1, 2018)

21.56.080 Development and design standards for co-location facilities.

A. Compliance with discretionary approvals. The co-location facility shall comply with all approvals and conditions of the underlying (existing) discretionary permit for the Wireless Telecommunications Facility.

B. Harmonious design. To the extent feasible, the design of co-location facilities shall also be in visual harmony with the other Wireless Telecommunications Facility(ies) on the site.

C. Additional design standards. Co-location facilities also shall be subject to the additional design standards specified in Section 21.56.100.

(ORD-18-0012 § 1, 2018)

21.56.090 Application requirements for co-location facilities.

Applications that qualify for administrative review of co-location facilities in accordance with Section 21.56.070 shall be required to submit the following:

A. Photo simulations of the facility from reasonable line-of-sight locations from public roads or viewpoints;

B. A maintenance and access plan that identifies any changes to the original maintenance and access plan associated with the existing Wireless Telecommunications Facility and Conditional Use Permit;

C. A Radio Frequency (RF) report demonstrating that the emissions from the co-location equipment as well as the cumulative emissions from the co-location equipment and the existing facility will not exceed the limits established by the Federal Communications Commission (FCC);

D. Prior to the issuance of a building permit, the applicant shall submit color samples, and materials samples if requested, for the co-location equipment and any screening devices. Paint colors and materials shall be subject to the review and approval of the Department of Development Services. Color verification shall occur in the field after the applicant has painted the equipment the approved color, but before the applicant schedules a final inspection.

(ORD-18-0012 § 1, 2018)

21.56.100 Development and design standards for all Wireless Telecommunications Facilities and co-location facilities.

The following standards shall apply to all Wireless Telecommunications Facilities and co-location facilities:

A. The adverse visual impact of Wireless Telecommunications Facilities shall be avoided, minimized, and mitigated by:

1. Siting new Wireless Telecommunications Facilities outside of public viewshed whenever feasible;

2. Maximizing the use of existing vegetation and natural features to cloak Wireless Telecommunications Facilities;

3. Constructing towers or monopoles no taller than necessary to provide adequate coverage, network capacity, and service quality;

4. Grouping buildings, shelters, cabinets, ground lease areas, and other equipment together, to avoid spread of these structures across a parcel or lot;

5. Screening Wireless Telecommunications Facilities and co-location facilities with landscaping consisting of drought-tolerant plant material. All ground lease areas shall be landscaped with climbing vines on the exterior of the enclosure wall, planted not more than four feet (4') on center. Adequate irrigation systems shall be provided for landscaping. The landscape screening requirement may be modified or waived by the Director of Development Services in instances where landscaping would not be appropriate; and

6. Painting all equipment to blend with the surrounding environment as specified in Subsection 21.56.100.C (Paint Colors).

B. Pole design. Use of monopoles that attempt to replicate trees or other natural objects are strongly discouraged and shall be used only as a last resort when all other options have been exhausted, since:

1. Artificial trees cannot presently be made to resemble natural trees in a sufficiently believable and realistic fashion; and

2. Such attempts to replicate nature are disingenuous by their obvious falsity and therefore increase, rather than reduce, visual blight.

C. Paint colors. Paint colors for a Wireless Telecommunications Facility and co-location facility shall minimize the facility's visual impact by blending with the surrounding environment, terrain, landscape, or buildings (not sky colors, as the sky is a luminous source of light at all times and no non-luminous object can physically be made to blend with the sky). Paint colors shall be subject to the review and approval of the Department of Development Services. Color verification shall occur in the field after the applicant has painted the equipment in the approved color(s), but before the applicant schedules a final inspection.

D. Roof/building-mounted facilities. For roof/building-mounted Wireless Telecommunications Facilities and co-location facilities, the following standards also shall apply:

1. Antenna location.

a. Antennas mounted on the facade of a building are strongly discouraged, but if approved, must be fully integrated into the architecture of the existing structure or otherwise screened from public view. "Stealth boxes" enclosing facade antennas shall not be considered adequate screening;

b. Antennas shall be mounted on building rooftops, roof decks, or penthouses whenever feasible as a preferred alternative to facade-mounting. Antennas located on the building rooftop shall be located above the ceiling plate of the highest occupied floor;

c. Antennas shall be located as far away as possible from the edge of the building or roof, with the goal of reducing or eliminating visibility of the installation from any and all vantage points.

2. Equipment location.

a. All equipment appurtenant to a roof/building-mounted wireless telecommunications site shall be located inside an existing building whenever possible, to the satisfaction of the Director of Development Services;

b. If it is physically impossible for equipment to be located inside an existing building and the equipment is to be located on a building rooftop, the equipment shall be subject to the same screening and location requirements as the antennas. If no space for the equipment is available for lease in a building because all possible spaces are leased and occupied, this shall constitute a physical impossibility.

3. Screening required.

a. Where physically possible, antennas and equipment shall be located entirely within an existing architectural feature or screening device. This shall include areas used or occupied by other wireless service providers where feasible.

b. All antennas and equipment mounted on a building rooftop shall be screened in a manner that is architecturally compatible with the existing building and is otherwise made as unobtrusive as possible. Screening shall use matching colors, materials, and architectural styles to create a harmonious addition to the building's architecture without disrupting its form, volume, massing, or balance.

c. All antennas, including panel antennas, microwave antennas, GPS antennas, any other antennas, and all other equipment mounted on the building, shall be concealed behind the screening device on all sides such that the antennas and appurtenant equipment is not visible from the exterior of the subject property, from other property, or the public right-of-way.

d. All cable trays and cable runs shall be located within existing building walls whenever physically possible. Cable trays and runs on the facade of a building are strongly discouraged. Any facade-mounted cable trays and runs shall be painted and textured to match the building and shall be mounted as close to the facade surface as possible, with no discernible gap between. Cable trays and runs mounted on a roof deck and below the height of the parapet wall or screening device shall be exempt from this requirement, provided they are fully screened by the parapet wall or screening device. Exposed cable trays and runs on a sloped roof are prohibited.

e. At the discretion of the Staff Site Plan Review Committee, part or all of a proposed roof/building-mounted Wireless Telecommunications Facility or co-location facility may be exempted from screening requirements if the best feasible screening design would result in greater negative visual impacts than if part or all of the proposed installation were unscreened.

4. Restriction on Historic Landmark structures. Installation of a roof/building-mounted Wireless Telecommunications Facility or co-location facility at a City-designated Historic Landmark shall make no changes to the external appearance of the building unless approved by the Cultural Heritage Commission.

E. Non-reflective materials. The exteriors of Wireless Telecommunications Facilities and co-location facilities shall be constructed of non-reflective materials.

F. Underlying setbacks. Wireless Telecommunications Facilities and co-location facilities shall comply with all the setback requirements of the underlying zoning district(s), except as modified by this Chapter.

G. Height. Facilities subject to the provisions of this Chapter may be built and used to a greater height than the limit established for the zoning district in which the structure is located, except as otherwise provided below:

1. No monopole or other freestanding structure shall ever exceed a maximum height of one hundred twenty feet (120') in any zoning district. In any Residential (R) or Institutional (I) zoning district, or Residential/Institutional Planned Development (PD) district, no monopole or other freestanding structure shall exceed a maximum height of fifty-five feet (55').

However, if an applicant demonstrates that the monopole or structure will accommodate a minimum of two (2) carriers, the site may be permitted at a maximum height of sixty feet (60'); or the applicant demonstrates that the monopole or structure will accommodate three (3) carriers, the site may be permitted at a maximum height of sixty-five feet (65');

2. A roof/building-mounted Wireless Telecommunications Facility shall not exceed the maximum height allowed in the applicable zoning district, or ten feet (10') above the building roof deck, whichever is higher, except that in any R-1, R-2, or R-3 district, no roof/building-mounted site shall exceed the maximum height for structures allowed in that district;

3. Notwithstanding the height limits set forth in the preceding Sections, for facilities to be mounted on towers used for high-voltage electrical power transmission between generating plants and electrical substations (not utility poles), the antennas may be mounted as high as necessary on the tower, provided that the top of the highest antenna is not higher than the top of the existing tower.

H. Accessory buildings. In any zoning district, accessory buildings in support of the operation of the Wireless Telecommunications Facility or co-location facility may be constructed, provided that they comply with the development standards set forth for accessory structures for the zoning district in which the site is located.

I. Footprint. The overall footprint of each Wireless Telecommunications Facility shall be as small as possible, to the satisfaction of the Staff Site Plan Review Committee.

J. Generators and emergency power. Diesel generators are allowed as an emergency power source, although they are discouraged. When a feasible alternative technology for permanent on-site backup power becomes available (for example, fuel cells) the Department of Development Services may require the use of such technology in lieu of a diesel generator, unless the applicant provides written documentation explaining why such an alternative is not feasible. All generator installations shall comply with all containment requirements of the applicable Fire and Building Codes, without exception. Unless otherwise approved by the Director of Public Works or if within the Coastal Commission's retained permit jurisdiction area, by the Coastal Commission or its Executive Director, generators and emergency power source for wireless facilities located in the public right-of-way are prohibited.

K. Ground lease area enclosures and landscaping. If equipment appurtenant to a facility is to be located in a ground lease area, the lease area shall be enclosed by a CMU block wall, or other appropriate fence, to the satisfaction of the Staff Site Plan Review Committee. The fence shall be of a minimum height of six feet six inches (6'6") in residential districts, and eight feet (8') in other districts, unless waived at the discretion of the Director of Development Services in cases of infeasibility. The exterior of all ground lease areas shall be landscaped with drought-tolerant plant material, and adequate irrigation systems shall be provided for landscaping. Climbing vines shall be provided on the exterior of the enclosure wall, planted not more than four feet (4') on center. This landscaping requirement may be modified or waived by the Director of Development Services in instances where landscaping would not be appropriate.

(ORD-20-0025 § 13, 2020; ORD-18-0012 § 1, 2018)

21.56.110 Performance standards for all Wireless Telecommunications Facilities and co-location facilities.

No use may be conducted in a manner that, in the determination of the Director of Development Services, does not meet the performance standards below:

A. Lighting. Wireless Telecommunications Facilities and co-location facilities shall not be lighted or marked unless required by the Federal Communications Commission (FCC), the Federal Aviation Administration (FAA), or the California Public Utilities Commission (CPUC).

B. Licensing. The applicant or operator shall file, receive, and maintain all necessary licenses and registrations from the Federal Communications Commission (FCC), the California Public Utilities Commission (CPUC) and any other applicable regulatory bodies prior to initiating the operation of the Wireless Telecommunications Facility. The applicant shall supply the Department of Development Services with evidence of these licenses and registrations prior to approval of a final inspection. If any required license is ever revoked, the operator shall inform the Department of Development Services of the revocation within ten (10) days of receiving notice of such revocation.

C. Building permit required. Once a Conditional Use Permit or other applicable entitlement is obtained, the applicant shall obtain a building permit and shall build in accordance with the approved plans.

D. Power connection. The project's final electrical inspection and approval of connection to electrical power shall be dependent upon the applicant obtaining a permanent and operable power connection.

E. Removal after end of use. The Wireless Telecommunications Facility, and/or co-location facility, if present, and all equipment associated therewith shall be removed in its entirety by the operator, at the operator's sole expense, within ninety (90) days of a FCC or CPUC license or registration revocation or if the facility is abandoned (per Subsection 21.56.020.A) or no longer needed. The site shall be restored to its pre-installation condition and, where necessary, re-vegetate to blend in with the surrounding area. In the case of roof/building-mounted facilities, all antennas, equipment, screening devices, support structures, cable runs, and other appurtenant equipment shall be removed and the building shall be restored to its to its pre-installation condition. Restoration and re-vegetation shall be completed within two (2) months of removal of the facility; hence a maximum of five (5) months from abandonment of the facility to completion of restoration. Facilities not removed within these time limits shall be removed immediately. The City shall not be responsible to provide notice that removal is required under the provisions of this Chapter.

F. Maintenance. Wireless Telecommunications Facilities and co-location facilities shall be maintained by the permittee(s) and subsequent owners in a manner that implements all of the applicable requirements of this Chapter and all other applicable zoning and development standards set forth in Title 21, and all permit conditions of approval. Site and landscaping maintenance shall be the responsibility of the property owner, who may designate an agent, including the operator, to carry out this maintenance.

G. Noise. All construction and operation activities shall comply with Chapter 8.80 (Noise Ordinance) of the Long Beach Municipal Code and any applicable conditions of approval.

H. Use of backup power sources. The use of diesel generators or any other emergency backup power sources shall comply with Chapter 8.80 of the Long Beach Municipal Code (Noise Ordinance). The use of backup power sources shall be limited to actual power-outage emergencies and any operation necessary for testing and maintenance. Permanent or continuous use of backup power sources is prohibited.

I. RF report. Within forty-five (45) days of commencement of operations, the applicant for the wireless communications facility shall provide (at the applicant's expense) the Development Services Department with a report, prepared by a qualified expert, indicating that the actual radio frequency emissions of the operating facility, measured at the property line or nearest point of public access and in the direction of maximum radiation from each antenna, is in compliance with the standards established by the Federal Communications Commission. This report shall include emissions from all co-location facilities, if any, at the site as well. The applicant shall subsequently provide such report to the City within forty-five (45) days following any change in design, number of antennas, operation, or other significant change in circumstances, or when such a report is otherwise required by the FCC, to the satisfaction of the Director of Development Services.

(ORD-18-0012 § 1, 2018)

21.56.120 Additional requirements and standards for Wireless Telecommunications Facilities and co-location facilities in the coastal zone.

A. Location. New Wireless Telecommunications Facilities shall not be located between the first public highway and the sea or bay, unless no feasible alternative exists, and the facility is not visible from a public location, or will be attached to an existing structure in a manner that does not significantly alter (in the determination of the Staff Site Plan Review Committee) the exterior appearance of the existing structure.

B. Operational Interference with Public Rights-of-Way. No part of a wireless telecommunication facility shall alter vehicular circulation or parking within the public right-of-way, nor shall it impede vehicular and/or pedestrian access or visibility along any public right-of-way. No permittee shall locate or maintain wireless telecommunication facilities to unreasonably interfere with the use of City property or the public right-of-way by the City, by the general public or by other persons authorized to use or be present in or upon the public right-of-way. Unreasonable interference includes disruption to vehicular or pedestrian traffic on City property or the public right-of-way, interference with public utilities, and any such other activities that will present a hazard to public health, safety or welfare when alternative methods of construction would result in less disruption. All such wireless telecommunications facilities shall be moved by the permittee, at the permittee's cost, temporarily or permanently, as determined by the Director of Public Works.

C. Aesthetic Impacts. All wireless telecommunication facilities shall be designed and located to eliminate or substantially reduce their visual and aesthetic impacts upon the surrounding public rights-of-way and public vantage points. To accomplish this goal, all wireless telecommunication

equipment shall be developed with the intent of locating and designing such facilities in the following manner and order of preference (from top to bottom). In instances where a facility is proposed for installation at a location or in a manner that is not the highest preference for each of the following categories, the applicant shall make a factual showing that all higher preferences are infeasible:

1. Antenna preferences:

    a. On an existing public utility pole;

    b. On a replacement street light pole;

    c. On an existing structure other than a street light pole or utility pole in the public-right-of-way;

    d. On a new structure other than a street light pole or utility pole in the public right-of-way (e.g., wireless telecommunication kiosk);

    e. On an existing non-wood utility pole;

    f. On a new non-wood utility pole;

    g. On an existing wood utility pole.

2. Equipment preferences (for all appurtenant equipment, including, but not limited to, radio units, power supplies, voltage converters, and electrical service connections and meters):

    a. When bundled in an all-in-one equipment cabinet with the antenna(s), provided, however, that the size of the cabinet shall be minimized to the satisfaction of the Director of Public Works;

    b. Within a below-grade equipment vault, or on a street light pole or utility pole that does not place new cabinets or other above ground furniture in the public right-of-way, provided, however, that the size of the boxes on the pole shall be minimized to the satisfaction of the Director of Public Works and that the power supply equipment is undergrounded;

    c. Attached to existing power source in an existing utility box;

    d. Enclosed at the base of the pole on which the antenna(s) is/are proposed for installation;

    e. In an existing ground-mounted (grade-level) equipment cabinet, with no expansion or additional cabinets to be added;

    f. Within a new equipment enclosure mounted at grade.

3. Site location preferences:

    a. Within the public right-of-way, not in a center median, and not requiring the removal of existing parkway trees, reduction of the size of any parkway landscape planters, and not requiring any modifications to the existing location of any infrastructure within the public right-of-way;

b. Within the parkway landscaping within the public right-of-way, and requiring only minor alterations to the existing parkway landscaping (including planter size) and/or infrastructure;

c. Within the public right-of-way in a manner that requires significant alteration to the existing public improvements and/or infrastructure.

4. Site location restrictions. In addition to the orders of preference specified in the preceding subsections, the following location prohibitions shall be applicable to all applications for installations of wireless telecommunications facilities in the public rights-of-way.

a. All wireless telecommunication facility antennas, equipment and related infrastructure shall be prohibited in all center street medians;

b. In Residential Zoning Districts or Residential Planned Development Districts, only one (1) wireless telecommunications facility and associated equipment per applicant (including contractors, subcontractors, agents, or lessors to applicant or applicant's affiliate) shall be permitted within the public right-of-way within a five hundred foot (500') radius. For all other applicants, only one (1) wireless telecommunications facility and associated equipment per applicant shall be permitted within the public right-of-way within a one hundred foot (100') radius. The separation requirements in the preceding two sentences may be waived by the Director of Public Works upon a demonstration that the refusal to allow an additional facility within a five hundred foot (500') or one hundred foot (100') radius will result in the creation of a significant coverage gap for the applicant and/or that such refusal will otherwise violate an applicable state or federal law;

c. Wireless on strand or overhead lines shall be prohibited;

d. New wood poles and strand mounts may be allowed by the Director of Public Works if the applicant demonstrates that a wooden pole or strand mount is less impactful (from public safety, visual, or logistic standpoints) at a specific location.

D. Height.

1. Antenna installations on existing City infrastructure shall not exceed the height of the existing infrastructure piece by more than five and one-half feet (5.5') unless approved by the City Engineer or Director of Public Works after a finding is made that a greater height would promote the aesthetic or safety concerns of the City;

2. For antenna(s) proposed for placement on a new pole in the public right-of-way, the height to the top of the highest element shall not exceed the average height of utility poles on the same block as the subject site by more than five and one-half feet (5.5'). In cases of uncertainty, the Director of Public Works shall have the authority to determine the applicable height limit;

3. Pole-mounted equipment shall be a minimum of ten feet (10') above level of sidewalk for public safety reasons.

E. Design.

1. Any pole to be installed in the public right-of-way shall be disguised to resemble a utility pole to the maximum extent possible. All antennas shall be limited to a diameter no more than the widest part of the main pole, excluding its base. All antennas and screening devices shall be painted or finished to match the pole. All pole or equipment shall be painted or otherwise coated, per City standard, to be visually compatible with existing poles and equipment. The installation of new wood poles is not preferred;

2. Omnidirectional antenna units and groups of panel antennas shall be placed on the same vertical axis as the center of the pole where feasible. If not feasible, the installation shall utilize brackets and/or cross-arms that allow no more than a six-inch (6") extension (stand-off) from the pole except when additional stand-off is required to comply with health and safety regulations such as GO-95 and OSHA;

3. Antenna installations on existing City infrastructure shall be placed in a manner so that the size, appearance and function of the final installation is essentially identical to the installation prior to the antenna installation taking place;

4. No faux or otherwise nonfunctioning street lights, decorative elements, signs, clock towers, or artificial trees or shrubs or other such nonfunctioning screening elements made to resemble other objects shall be permitted;

5. Wireless telecommunications facility equipment located above the surface grade in the public right-of-way including, but not limited to those on certain street lights, shall consist of small equipment components that are compatible in structure, scale, function and proportion to the poles they are mounted on. Equipment shall be painted or otherwise coated, per City standard (which may include public art), to be visually compatible with the subject pole. Underground vaults shall employ flush-to-grade access portals and vents that are heel shoe safe and slip safe; provided, however, that this restriction shall not apply in flood prone areas. Installations on City-owned or controlled public facilities shall be subject to applicable fees as approved by the City Council;

6. Facilities shall be designed to be as visually unobtrusive as possible. Applicant shall size antennas, cabinet equipment and other facilities to minimize visual clutter. Facilities shall be sited to avoid or minimize obstruction of views from public vantage points and otherwise minimize the negative aesthetic impacts of the public right-of-way;

7. All cables and conduits shall be routed through the interior of the subject pole; provided, however, that for wood poles all cables and conduits shall be mounted and routed in a manner calculated to minimize their visibility;

8. All cables shall be screened from public view.

F. Local coastal program requirements. New Wireless Telecommunications Facilities shall comply with all applicable policies, standards, and regulations of the Local Coastal Program (LCP).

G. Coastal permit required. The necessary Coastal Development Permit or Local Coastal Development Permit shall be obtained.

(ORD-20-0025 § 14, 2020; ORD-18-0012 § 1, 2018)

21.56.130 Additional requirements and standards for Wireless Telecommunications Facilities located in Park Zoning Districts.

A. For the purpose of this Chapter the term Park Zoning District shall include those areas of the City regulated and established pursuant to Chapter 21.35 of this Code.

B. Installation of Wireless Telecommunications Facilities in Park Districts must be pursuant to a lease or permit approved by the City Council. For those parks under the jurisdiction of the City's Parks and Recreation Commission, the matter shall first be submitted to the Commission for its recommendation. A Conditional Use Permit shall not be required.

C. Prior to the City Council considering any lease or permit of Park District land for a Wireless Telecommunications Facility, the matter shall first be submitted to the Site Plan Review Committee in accordance with Chapter 21.25 of this Code. The Site Plan Review Committee shall impose reasonable conditions of approval, which shall include the minimum development, design and performance standards set forth in this Chapter.

D. Application for Site Plan review in a Park Zoning District shall be in accordance with Section 21.56.050, or Section 21.56.090, if it is to be a co-location facility.

E. All Site Plan Review proceedings conducted in accordance with this Section shall be subject to the Administrative Procedures set forth in Chapter 21.21, and the specific procedures set forth in Section 21.25.501 et seq., relative to site plan reviews.

F. In order to effectuate parity between those Wireless Telecommunications Facilities located in Park Zoning Districts and those located elsewhere in the City, a fee equivalent to that established by the City Council for the processing and issuance of a Conditional Use Permit shall be charged.

(ORD-18-0012 § 1, 2018)

21.56.140 Other provisions.

A. Temporary wireless telecommunication facilities. Installation, maintenance, or operation of any temporary wireless telecommunications site is prohibited except as allowed under a special events permit necessary during a special event authorized by Chapter 5.60 of the LBMC, or during a government-declared emergency.

B. Illegal facilities. Illegal Wireless Telecommunications Facilities or co-location facilities have no vested rights and shall either be brought into legal conforming status in accordance with this Chapter and Title 21 of the Long Beach Municipal Code, or shall be removed.

C. Modifications to Wireless Telecommunications Facilities. Any modification to a Wireless Telecommunications Facility or co-location facility, including but not limited to, replacement of

antennas, installation of additional antennas, installation of additional equipment cabinets, installation of a backup generator, paint or camouflage changes, and other physical changes to the facility, shall require, at a minimum, an administrative approval, and, if necessary, a building permit from the Department of Development Services. Prior to issuance of any approval for modification, the applicant shall submit an application for an administrative review to determine the compliance of the proposed modification with this Chapter and the existing Conditional Use Permit or other entitlement. For sites not located in the public right-of-way, applications for modification will be subject to the standards and procedures set forth for new Wireless Telecommunications Facilities, as specified in Sections 21.56.030 through 21.56.060, if any of the following apply:

1. No Conditional Use Permit was issued for the original Wireless Telecommunications Facility;

2. The Conditional Use Permit for the original Wireless Telecommunications Facility did not allow for future modification or the extent of site improvements involved with the modification project (in this case, an application for a modification to the approved Conditional Use Permit, subject to Planning Commission review, may be substituted for a new Conditional Use Permit); or

3. No environmental review was completed for the location of the original Wireless Telecommunications Facility that addressed the environmental impacts of future modifications (in this case, an application for a modification to the approved Conditional Use Permit, subject to Planning Commission review, may be substituted for a new Conditional Use Permit).

D. Peer review.

1. The Director of Development Services is authorized to retain on behalf of the City an independent technical expert to peer review any application for a Wireless Telecommunications Facility Permit if reasonably necessary, as determined by the Director. The review is intended to be a review of technical aspects of the proposed Wireless Telecommunications Facility and shall address all of the following:

   a. Compliance with applicable radio frequency emission standards;

   b. Whether any requested exception is necessary to close a significant gap in coverage, increase network capacity, or maintain service quality and is the least intrusive means of doing so;

   c. The accuracy and completeness of submissions;

   d. Technical demonstration of the unavailability of alternative sites or configurations and/or coverage analysis;

   e. The applicability of analysis techniques and methodologies;

   f. The validity of conclusions reached;

   g. The compatibility of any required architectural screening;

h. Technical data submitted by the applicant to justify the proposed height of any new installation including monopoles or roof/building-mounted sites; and

i. Any specific technical issues designated by the City.

E. Appeals.

1. Appeals from the decision(s) of the Director of Development Services or designee, and/or the Staff Site Plan Review Committee, shall be to the Planning Commission.

2. Appeals from the decision(s) of the Planning Commission shall be to the City Council.

3. All appeals shall be in accordance with the provisions of Title 21 related to Appeals.

F. Revocation. The Planning Commission may, after a duly noticed public hearing, revoke, modify or suspend any wireless telecommunications permit on any one (1) or more of the following grounds:

1. That the wireless telecommunications permit was obtained by fraud or misrepresentation;

2. That the wireless telecommunications permit granted is being, or within the recent past has been, exercised contrary to the terms or conditions of such approval or in violation of any statute, ordinance, law or regulation; or

3. That the use permitted by the wireless telecommunications permit is being, or within the recent past has been, exercised so as to be detrimental to the public health or safety or as to constitute a nuisance.

G. Findings. A Conditional Use Permit, Site Plan Review, or modification for a Wireless Telecommunications Facility or co-location facility may be granted only if the following findings are made by the designated reviewing body or person, in addition to any findings applicable under Chapter 21.25:

1. The proposed Wireless Telecommunications Facility has been designed to achieve compatibility with the community to the maximum extent reasonably feasible;

2. An alternative configuration will not increase community compatibility or is not reasonably feasible;

3. The location of the Wireless Telecommunications Facility on alternative sites will not increase community compatibility or is not reasonably feasible;

4. The proposed facility is necessary to close a significant gap in coverage, increase network capacity, or maintain service quality, and is the least intrusive means of doing so;

5. The applicant has submitted a statement of its willingness to allow other wireless service providers to co-locate on the proposed Wireless Telecommunications Facility wherever technically and economically feasible and where co-location would not harm community compatibility; and

6. Noise generated by equipment will not be excessive, annoying nor be detrimental to the public health, safety, and welfare.

H. Transfer or Change of Ownership/Operator. Upon assignment or transfer of an already approved Wireless Telecommunications Facility or any rights under that permit, the owner and/or current operator of the Facility shall within thirty (30) days of such assignment or transfer provide written notification to the Director of Development Services of the date of the transfer and the identity of the transferee. The Director may require submission of any supporting materials or documentation necessary to determine that the proposed use is in compliance with the existing permit and all of its conditions including, but not limited to, statements, photographs, plans, drawings, models, and analysis by a State-licensed radio frequency engineer demonstrating compliance with all applicable regulations and standards of the Federal Telecommunications Commission and the California Public Utilities Commission. If the Director determines that the proposed operation is not consistent with the existing permit, the Director shall notify the applicant who may revise the application or apply for modification of the permit pursuant to the requirements of this Chapter.

(ORD-20-0025 § 15, 2020; ORD-18-0012 § 1, 2018)

21.56.150 Severability clause.

If any provision or clause of this Chapter or the application thereof to any person or circumstance is held to be unconstitutional or to be otherwise invalid by any court of competent jurisdiction, such invalidity shall not affect other article provisions or clauses or applications, and to this end the provisions and clauses of this Chapter are declared to be severable.

(ORD-18-0012 § 1, 2018)

CHAPTER 21.57 ALCOHOL NUISANCE ABATEMENT

21.57.010 [Title.]

These provisions shall be known as the Alcohol Nuisance Abatement "Deemed Approved" Ordinance.

(ORD-13-0012 § 1, 2013)

21.57.020 Definitions.

"Liquor store" means any business selling general alcoholic beverages, also known as sale of distilled spirits or hard liquor, for off-premises consumption under a "Type 21 License" of the California Department of Alcoholic Beverage Control. Liquor store does not include a business selling only beer and/or wine for off-premises consumption.

"Performance Standards" means the regulations prescribed below for liquor store activities with deemed approved status. An establishment must comply with the performance standards in order to retain its deemed approved status. Such compliance shall be determined by the City of Long Beach, and includes the following:

A. The use does not result in any adverse effects, jeopardize, or endanger the health, peace, or safety of persons residing, visiting, or working in the surrounding area;

B. The use is operated and maintained in accordance with all applicable local, state, or federal codes, laws, rules, regulations and statutes including those of the ABC, the City's General Plan, and all zoning or nuisance regulations of the City;

C. The use is operated and maintained in a neat, quiet, and orderly condition and operated in a manner so as not to be detrimental to surrounding properties and occupants. This shall encompass the upkeep and maintenance of exterior facades of the building, landscaping, designated parking areas serving the use, fences, and the perimeter of the site, including all public sidewalks, alleys, and parkways;

D. The use does not result in repeated nuisance activities, as defined in Chapter 9.37 of this Code on or near the premises, including but not limited to disturbance of the peace, illegal drug activity, public drunkenness, drinking in public, harassment of passersby, gambling, prostitution, sale of stolen goods, public urination, theft, assaults, batteries, acts of vandalism, excessive littering, loitering, graffiti, illegal parking, excessive loud noises especially in the late night or early morning hours, traffic violations, curfew violations, lewd conduct, or police detentions and arrests;

E. The use provides exterior lighting and security measures to the satisfaction of the Chief of Police including:

1. Exterior lighting consisting of high-pressure sodium or equivalent type, with a minimum illumination intensity of a 1.25 foot-candle. All exterior light fixtures shall be vandal resistant, installed on exterior walls, and should be the type with proper cut-offs to avoid glare and night sky glow. Exterior lighting shall clearly illuminate the building address, all parking, driving, and walking surfaces, and exterior doors during the hours of darkness. Activation of the required exterior lighting shall be either by a photocell device or a time clock. Any broken or burned out lights shall be required to be replaced within seventy-two (72) hours;

2. Security cameras providing full camera coverage of all entries and exits into the building and full camera coverage of all public rights-of-way and private parking areas provided by the business. Cameras must record in color with output of at least four hundred eighty (480) lines resolution. Recordings shall be retained for no less than thirty (30) days on an IP-configurable Digital Video Recorder (DVR) or digital storage setup with a public IP address. The surveillance system username and password shall be provided to the Long Beach Police Department.

F. No more than ten percent (10%) of the square footage of the windows and transparent doors of the premises shall be allowed to bear advertising, signs or any other obstructions including products, shelving, display items and/or coolers. All advertising, signage, product, shelving, display items and/or coolers shall be placed and maintained to ensure a clear and unobstructed view of the establishment's interior. Window signs displaying prices shall be prohibited. No advertising or signage shall be placed in the area above three (3) feet or below six (6) feet in height of all windows measured from grade.

G. All existing publicly accessible exterior pay telephones shall be removed, including the housing of the pay telephone. No new publicly accessible exterior pay telephone may be located on any private property or any public right-of-way adjacent to a deemed approved liquor store activity.

H. Any graffiti found on the walls, fences, pavement or buildings shall be removed within twenty-four (24) hours of its appearance on the property.

I. The building address shall be displayed on all sides of the building facing a public right-of-way, including an alley, and clearly visible from each public right-of-way, including the alley.

J. A copy of these performance standards, additional City or ABC imposed operating conditions, and a twenty-four (24) hour complaint telephone number shall be posted in a conspicuous and unobstructed place visible from the entrance of the establishment in public view.

"Deemed Approved Liquor Store" means any commercial land use where the sale of beer, wine, or distilled spirits was a legal nonconforming use prior to the effective date of this Chapter.

"Nonconforming use" or "Nonconformity," for the purposes of this Chapter, means a building which was lawfully established but which, due to the application of this Title, no longer conforms to the regulations of the zone in which it is located. (See Section 21.15.1860.)

(ORD-13-0012 § 1, 2013)

21.57.030 Purpose.

The purpose of this ordinance is to protect and promote the public health, safety, comfort, convenience and general welfare of the community by imposing anti-nuisance related performance standards on legal nonconforming liquor store activities with the incorporation of performance standards, the sale of alcohol becomes a conforming activity; however, all other nonconformities remain subject to the provisions of Chapter 21.27.

(ORD-13-0012 § 1, 2013)

21.57.040 Applicability.

This Alcohol Nuisance Abatement Deemed Approved Ordinance shall apply to all legal nonconforming liquor stores in the City of Long Beach on the effective date of this Chapter. The following establishments with a Type 21 ABC license are exempt from the ANAO: those with a current CUP, establishments that are located more than five hundred feet (500') from zoning districts allowing residential uses, and grocery stores of twenty thousand (20,000) square feet or greater with accessory sales of alcohol.

(ORD-13-0012 § 1, 2013)

21.57.050 Automatic Deemed Approved.

A. All liquor stores that were legal nonconforming uses immediately prior to the effective date of this Chapter shall automatically be granted deemed approved status for the liquor store activity and shall no longer be considered legal nonconforming uses.

B. Each deemed approved liquor store activity shall retain its deemed approved activity status as long as it complies with the performance standards as defined in Section 21.57.020 of this Chapter.

C. Any expansion, alteration, or modification in character of the deemed approved liquor store shall conform to the City's Zoning Code including obtaining permits required under Chapter 21.25 of this Code.

(ORD-13-0012 § 1, 2013)

21.57.060 Performance Standards.

A liquor store activity shall retain its deemed approved status only if it conforms to all of the nuisance based performance standards defined in 21.57.020; such conformance shall be determined by the City of Long Beach.

(ORD-13-0012 § 1, 2013)

21.57.070 Administration and Enforcement.

A. Within ninety (90) days of the effectiveness of this Chapter, each deemed approved liquor store activity shall fully comply with the nuisance based performance standards set forth in Section 21.57.020.

B. Upon receiving a complaint from the public, Police Department, Code Enforcement, or any interested person that a deemed approved liquor store activity is in violation of the standards set forth in Sections 21.57.020, the following procedure shall be followed:

1. The City shall assess the nature of the complaint and its validity by conducting an investigation of the premises to assess the liquor store activity's compliance with the applicable standards. The City shall provide the business and/or property owner, as appropriate, with written notice of any complaint received or investigation commenced by the City relative to the liquor store activity's alleged failure to abide by the regulations set forth in this Chapter.

2. Upon establishing the validity of a complaint, the City shall issue a notice of violation to the business and/or property owner of the subject deemed approved liquor store activity. The business and/or property owner shall correct the violation, or take reasonable action to begin correction, and shall diligently pursue completion of the correction within ten (10) days after receiving written notification of the violation. At the end of the correction period, the City shall determine if the violation has been corrected. If violations have not been corrected within the prescribed period, the City shall then refer the matter to the Site Plan Review Committee for further review and action.

3. The Site Plan Review Committee shall conduct a hearing on the validity of the complaint. At the conclusion of the hearing, the Site Plan Review Committee shall have the authority to add or modify performance standards to insure that nuisance activity or conditions are eliminated. Actions taken by the Site Plan Review Committee are appealable by any aggrieved party to the Planning Commission. The decision of the Planning Commission on appeal shall be final.

(ORD-13-0012 § 1, 2013)

21.57.080 Revocation of Deemed Approved Status.

A. If a deemed approved liquor store activity continues to violate the provisions of this Chapter after intervention by the Site Plan Review Committee, the City may refer the matter to the Planning Commission for a revocation hearing according to the procedures of Division VI, "Revocations", of Chapter 21.21 of this Code.

1. Based on its findings and determination after hearing, the Planning Commission may:

   a. Continue the deemed approved activity status for the liquor store in question;

   b. Issue an administrative citation and impose administrative penalties for violation of applicable standards in accordance with Chapter 9.65 of this Code;

   c. Impose such reasonable conditions as are in the judgment of the Planning Commission necessary to ensure compliance with the applicable standards; or

   d. Revoke the liquor store's deemed approved activity status.

2. If the Planning Commission determines to impose further new conditions on the deemed approved liquor store activity, such conditions shall be based upon the information then before the Planning Commission.

3. If the Planning Commission finds that conditions and/or modifications of the liquor store will be ineffective in eliminating the adverse activities, the Planning Commission shall revoke the deemed approved activity status of the liquor store.

4. Continuation of any use after abandonment or revocation pursuant to this Chapter shall constitute a violation of this Code and shall be penalized as provided for in Section 21.10.080.

5. Any aggrieved party may appeal the determination of the Planning Commission to the City Council in accordance with the provisions set forth in Division V, "Appeals", of Title 21 of this Code. The decision of the City Council on appeal shall be final.

(ORD-13-0012 § 1, 2013)

21.57.090 Fee.

A. The administrative citation process described in this Chapter does not preclude the City from recovering any other code violation or nuisance abatement costs incurred by the City in performing its code enforcement efforts.

B. The City may collect a fee to recover costs associated with the inspection and enforcement of this Chapter in accordance with the City Council adopted fee resolution.

(ORD-13-0012 § 1, 2013)

CHAPTER 21.60 RESERVED*

*__Editor's note__—ORD-21-0006, adopted February 2, 2021, repealed Ch. 21.60 §§ 21.60.110—21.60.710 entitled "Relocation Assistance for, and Meeting Housing Needs of, Persons of Very Low and Low Income Households," which derived from: ORD-09-0010 § 1, 2009; ORD-05-0007 §§ 2—8, 2006; Ord. C-7247 § 27, 1994; Ord. C-7064 § 6, 1992; Ord. C-6933 §§ 38—40, 1991; Ord. C-6894 § 1 (part), 1991; Ord. C-6868, 1991; Ord. C-6829, 1990; and Ord. C-6684, 1990.

[The next page is CD21:449]

CHAPTER 21.61 MAINTENANCE OF LOW INCOME HOUSING IN THE COASTAL ZONE

21.61.010 Purpose.

The purpose and intent of this Chapter is to maintain the present number of very low, low and moderate income housing units within the coastal zone and to require that any applicant for a coastal development permit, as a condition of permit issuance, be responsible for replacing existing very low, low and moderate income housing on a one-to-one basis.

(ORD-21-0027 § 1, 2021; Ord. C-6533 § 1 (part), 1988)

21.61.020 Definitions.

Very low, low and moderate income households and housing units are defined in Chapter 21.15 (Definitions).

(ORD-21-0027 § 1, 2021; Ord. C-6533 § 1 (part), 1988)

21.61.030 Applicability of this Chapter.

Any applicant proposing to remove existing affordable housing in the coastal zone shall be responsible for replacing on a one-to-one basis all existing very low, low and moderate income housing removed. This provision shall not apply in the following instances:

If the residential structure has been condemned and would require the expenditure of fifty percent (50%) or more of the improvement value, not including land value, to meet applicable building codes or regulations.

(ORD-21-0027 § 1, 2021; Ord. C-6533 § 1 (part), 1988)

21.61.040 Administration.

A. Authority. The administration of the replacement housing requirement and in-lieu fee payments is delegated to the Director of Development Services. The Development Services Department shall adopt appropriate guidelines for program administration consistent with the intent of this Chapter and consider both the rent and income levels of displaced tenants to make a determination about the affordability level of displaced units. Any fees assessed in connection with the administration of this Chapter shall be established by the City Council by resolution.

B. Determination.

1. It shall be the responsibility of the Director of Development Services to make all determinations regarding the very low, low and moderate cost housing displaced. In order to avoid short-term actions by the owner to disqualify housing from the very low, low and moderate income definitions, the Department of Development Services shall develop procedures to average rental levels over a three (3) year period and to establish fair market sales values based upon prior sales and assessment records.

2. Determinations made by the Director of Development Services shall be attached by the applicant to the coastal development permit application and shall become a public record in all proceedings and hearings related to that application. The Department of Development Services shall verify the rent/sales value history and insure that there have been no price changes made for the purpose of circumventing this Chapter or these regulations.

3. When the units provided under this program are not under the ownership and control of the City, the Director of Development Services shall act to insure that the units continue to be made available to very low, low and moderate households. The City and the property owner shall enter into an agreement and shall cause necessary covenants and deed restrictions to be recorded as provided for in Subsections 21.61.080.E and F.

(ORD-21-0027 § 1, 2021; Ord. C-6533 § 1 (part), 1988)

21.61.050 Responsibility to provide housing.

No coastal permit and no permit to demolish units shall be issued until the applicant has demonstrated compliance with the responsibility to provide replacement units, or has demonstrated the intention to comply with this Chapter prior to occupancy of the new development. No certificate of occupancy shall be issued prior to the satisfaction of this responsibility.

(ORD-21-0027 § 1, 2021; Ord. C-6533 § 1 (part), 1988)

21.61.060 Method of replacement.

An applicant shall provide replacement housing units by one of the methods outlined in Subsections 21.61.060.A through C:

A. On-site—New Units. The replacement units may be provided on the same site as the units being removed and shall be constructed prior to the issuance of a Certificate of Occupancy for any market-rate units being developed on the site.

B. In-lieu Fees. A developer may choose to pay in-lieu fees rather than provide replacement housing. Fees shall be paid in accordance with the provisions of Section 21.61.070. If the in-lieu fee is selected in a redevelopment project area, the developer shall be credited with the amount of relocation benefit actually paid to displaced residents, up to a maximum of four thousand five hundred dollars ($4,500.00) per unit, provided that the relocation payments made to displaced residents by the redevelopment agency are subsequently reimbursed by the developer.

C. Affordability Replacement Requirement. All units determined to be very low, low and moderate cost housing in accordance with Subsection 21.61.040.A above shall be replaced on a one-for-one basis. All replacement units must be provided at either the same or greater level of affordability as the existing affordable unit being replaced.

(ORD-21-0027 § 1, 2021; Ord. C-6533 § 1 (part), 1988)

21.61.070 In-lieu fees.

A. Payment Schedule. In-lieu housing replacement fees shall be paid in accordance with the schedule indicated in Table 61-1 and escalated each year at the rate of the Construction Cost Index (CCI)

to reflect current market cost. The fee shall be paid to the Director of Development Services for deposit in the Housing Trust Fund, or any similar successor fund, and shall be based on the number, size and income groups served by the displaced units. The schedule in Table 61-1 shall be adjusted annually in accordance with the current Construction Cost Index for the Los Angeles metropolitan area.

B. Dispensation of In-lieu Fees. The Director of Development Services shall place all in-lieu funds received into the Housing Trust Fund, or any similar successor fund, for the purpose of funding for very low, low and moderate income housing. The funds must be dispensed by the Director of Development Services or designee within three (3) years from the date of receipt.

Table 61-1
In-Lieu Fee Schedule

Number of Bedrooms in Displaced Unit	Very-Low Income	Low Income	Moderate Income
Studio	$241,000	$222,000	$127,000
1 Bedroom	$296,000	$272,000	$155,000
2 Bedrooms	$350,000	$322,000	$183,000
3+ Bedrooms	$404,000	$372,000	$212,000

C. Inventory of Properties. The Director of Development Services shall maintain an inventory of properties suitable for rehabilitation, new construction or acquisition within the area specified in Subsection 21.61.080.B.

D. Priority. The Director of Development Services shall seek housing opportunities funded by in-lieu fees in accordance with the following order of priority:

1. Rehabilitation of existing substandard units.

2. Conversion of existing standard market rate units to housing for very low, low and moderate income persons.

3. Construction of new housing for very low, low and moderate income persons.

The intent of this priority order is to maximize the number of affordable units produced so that the number produced will approximate or exceed the number of units lost to displacement. The Director of Development Services may alter this priority as deemed reasonable to accomplish the objectives of this Chapter. The Director shall attempt to reproduce affordable units in a mix proportional to the City-wide housing need, as established by the most current adopted general plan housing element and housing assistance plan.

E. Annual Report Required. The Development Services Department shall make an annual report to the City Council on its progress in this program. The report shall include annual and cumulative figures, in size and cost, for the number of housing units lost and the number of units provided by the program, as well as the relationship between program achievements and existing housing needs as established by the Housing Element and housing assistance plan. This reporting may be integrated into overall annual reporting to the City Council regarding the Housing Element.

(ORD-21-0027 § 1, 2021; Ord. C-6533 § 1 (part), 1988)

21.61.080 Conditions on replacement housing.

A. Equivalency. An applicant shall provide replacement housing units which are equivalent to the units displaced in terms of size, measured by the number of bedrooms and income range served, for persons of very low, low and moderate incomes. Subject to the approval of the Director of Development Services, and upon a showing that provision of equivalent units is not feasible, an applicant may provide replacement housing in a mix of household sizes and incomes. The mix shall be proportional to the City-wide housing need, as established in the most current General Plan Housing Element and housing assistance plan.

B. Location.

1. Any affordable housing produced through this program shall be located within the City of Long Beach anywhere south of the following line:

> Beginning at the Los Angeles River and Anaheim Street; thence east along Anaheim Street to Pacific Coast Highway; thence southeast along Pacific Coast Highway to Seventh Street; thence east along Seventh Street to West Campus Drive; thence north along West Campus Drive to the common boundary between Cal. State Long Beach and the Veterans Administration (VA) Hospital on the north side of the hospital; thence west, north, east and south around the Cal. State Long Beach property line, returning to Seventh Street along East Campus Drive; thence east along Seventh Street to the boundary line between Los Angeles and Orange Counties.

2. The Director of Development Services shall attempt to achieve a reasonable distribution throughout this area in accordance with City General Plan Housing Element policies.

C. Income Requirements.

1. Housing units produced through the replacement program shall be available to households of very low, low and moderate income. To achieve this, each new tenant of rental property and each new buyer of for sale property shall first be qualified by the Director of Development Services or designee in accordance with procedures set forth by HUD under Section 8 of the Housing Act of 1937, as amended, or similar procedures which take into account annual household income and total household assets.

2. Applicants shall be qualified as very low income, low income and moderate income, corresponding to the three (3) classes of housing units (very low, low and moderate) defined in Chapter 21.15 (Definitions).

D. Guarantee. An applicant shall guarantee that replacement housing provided pursuant to Section 21.61.040 will continue to be provided for very low, low and moderate income households. The applicant shall enter into a recorded agreement or covenant with the City as specified in Subsections 21.61.060.C and D.

E. Rental Units Guarantee. Affordable housing developed as rental units shall be subject to the following:

1. Prior to the issuance of an occupancy permit, the developer shall enter into an agreement with the Director of Development Services to assure that all units will continue to be rented at prices

affordable to very low, low and moderate income renters. The agreement shall bind the developer and any successor in interest to the real property being developed. The agreement shall be recorded as a covenant running with the land, with no prior liens, other than tax liens, for a period extending fifty-five (55) years from the date the agreement is recorded or for the life of the project, whichever is longer. The agreement shall provide that either:

a. The unit rents shall be fixed at a level affordable to very low, low and moderate income households. The rent may be adjusted annually to reflect changes in the median income. Tenants must qualify as meeting the definition of very low, low and moderate income; or

b. The units shall be rented at the fair market rent for new construction as established by the Department of Housing and Urban Development (HUD). The units shall be rented to persons who either meet the standards for rent subsidy established by HUD pursuant to Section 8 of the Housing Act of 1937, as amended, or to persons who meet the requirements of other rent subsidy or funding program that provides rental housing for low income households.

c. The developer and all successors in interest shall be subject to affordable housing covenant monitoring fees as may be established by the City Council by resolution.

2. The developer shall make best efforts to accomplish the intent of this Chapter. Those efforts shall include, but not be limited to, entering into contracts offered by HUD, the Housing Authority, or other such agency administering a rent subsidy program; or, refraining from taking any action to terminate any rent subsidy programs entered into.

3. In the event that any time within the life of the project after the agreement is recorded housing subsidies are not available, the developer or their successor shall maintain the rental levels for the unit at amounts no higher than those affordable to persons within the appropriate income categories described in this Title. In the event that so-called Section 8 or comparable maximum rental levels are no longer published by the federal government or local governmental agencies, maximum rental levels shall be a base rent established by the last rental ceiling published for the Section 8 program, adjusted by a percentage to reflect the percentage increase or decrease in median income.

F. Sale Unit Guarantee. Affordable units developed as sale units shall be subject to the following:

1. Prior to the issuance of a certificate of occupancy, the developer shall enter into an agreement with the Director of Development Services to assure that subsequent sales following the initial sale of the unit will be at a price affordable to households earning substantially the same percentage of the median income as the initial purchasers. The agreement shall bind the developer, any successor in interest and all subsequent purchasers of the unit. The agreement shall be recorded as a covenant running with the land, with no prior liens other than tax liens. The agreement shall provide as follows:

a. The applicant, his successors and any subsequent purchasers shall give the City and Department of Development Services an option to purchase the units. The City may assign this

option to an individual private purchaser who qualifies as a very low, low or moderate income person and who falls within substantially the same income group as the person for whom the initial sales price was originally established.

2. Whenever the applicant or any subsequent owner of the unit wishes to sell or transfer the unit, the applicant shall notify the Director of Development Services of his intent to sell. The City shall have the right to exercise the option cited in Subsection 21.61.080.F.1 within one hundred and eighty (180) days of the initial sale of the unit by the developer, or within ninety days for subsequent sales. Following the exercise of the option, escrow shall be opened and closed within ninety (90) days after delivery of the notice to exercise the option.

3. The option price paid by the City or its designee shall be the original sales price of the unit plus an amount which reflects any increase in the median income since the time of original sale.

4. Following the notice of intent to sell the unit, the City shall have the right to inspect the premises to determine whether repair or rehabilitation beyond the requirements of general or deferred maintenance is necessary. If such repair or maintenance is necessary, the City shall determine the cost of repair, and the cost shall be deducted from the purchase price. The repair costs shall be paid to the City, its designee, or contractors chosen by the City to carry out the deferred maintenance, and the money received shall be expended in making repairs.

5. The purchaser shall not sell, lease, rent, assign or otherwise transfer the property without the expressed written consent of the Director of Development Services. This provision shall not prohibit encumbering the property for the sole purpose of securing financing. However, in the event of foreclosure or sale by deed of trust or other involuntary transfer, title to the property shall be taken subject to the recorded agreement.

(ORD-21-0027 § 1, 2021; Ord. C-6533 § 1 (part), 1988)

21.61.090 First option.

Any resident displaced by new construction or condominium conversion in the coastal zone shall have the first option to rent or buy affordable housing.

(ORD-21-0027 § 1, 2021; Ord. C-6533 § 1 (part), 1988)

CHAPTER 21.62 RESERVED*

CHAPTER 21.63 INCENTIVES FOR AFFORDABLE HOUSING

21.63.010 Purposes.

This Chapter establishes a system of incentives to encourage developers to provide housing for very low, low income, moderate income, and senior households, pursuant to Section 65915 et seq. of the California Government Code. The incentive consists of a density bonus.

(ORD-06-0045 § 1 (part), 2006: Ord. C-6822 § 20 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.63.020 Qualification.

In order to qualify for a density bonus, a project must be a very low income, low income, moderate income condominium project as defined by the State of California, or a senior citizen housing project (as defined in Sections 51.2 and 51.3 of the California Civil Code).

(ORD-06-0045 § 1 (part), 2006: Ord. C-6822 § 20 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.63.030 Limitation.

Density bonuses shall not exceed the percentage as permitted by the State of California of maximum density allowed in the applicable zoning district.

(ORD-06-0045 § 1 (part), 2006: Ord. C-6822 § 20 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.63.040 Procedures.

The following procedural requirements shall be observed in reviewing and acting upon applications for density bonuses made pursuant to this Chapter:

A. Application. An application for a density bonus shall be made in conjunction with other required applications for residential developments and shall be subject to the same procedures required by this Title and other applicable Sections of the Municipal Code.

(ORD-06-0045 § 1 (part), 2006: Ord. C-6822 § 20 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.63.050 Development standards.

All residential projects granted a density bonus shall conform to the development standards of the applicable zoning district, except those standards regulating density or as waived according to Section 21.63.080 of this Chapter.

(ORD-06-0045 § 1 (part), 2006: Ord. C-6822 § 20 (part), 1990: Ord. C-6533 § 1 (part), 1988)

***Editor's note—**ORD-10-0035, § 2, adopted Nov. 16, 2010, repealed Ch. 21.62 §§ 21.62.010—21.62.240, entitled "Flood Damage Prevention", and derived from: Ord. C-6533 § 1 (part), 1988; Ord. C-7062 § 1 (part), 1992; Ord. C-7507 §§ 1—24, 27, 1997; Ord. C-7522 §§ 1, 2, 1998; and Ord. C-7544 §§ 1—11, 1998. See Ch. 18.73 for similar provisions.

21.63.060 Maintenance of units.

In exchange for the density bonus, the developer shall guarantee the units will be maintained for very low income, low income, moderate income condominiums, and senior households for thirty (30) years. The guarantee shall be in the form of a deed restriction or other legally binding and enforceable document acceptable to the City Attorney. The document shall be recorded with the Los Angeles County Recorder prior to the issuance of a building permit. The applicant shall comply with the provisions of Chapter 21.60 of this Code for the maintenance of the units according to Housing Authority procedures.

(ORD-06-0045 § 1 (part), 2006: Ord. C-6822 § 20 (part), 1990: Ord. C-6533 § 1 (part), 1988)

21.63.070 Additional incentives.

In addition to the density bonus, the very low income, low income, moderate income condominiums, and senior units shall be exempt from the parks and recreation and transportation developer fees, if the developer is in compliance with the applicable exemption provisions of Sections 18.17.130, 18.18.120 and 18.18.140 of the Long Beach Municipal Code as they now exist or may later be amended.

(ORD-06-0045 § 1 (part), 2006: Ord. C-7247 § 28, 1994: Ord. C-6822 § 20 (part), 1990)

21.63.080 Waiver of development standards.

A. **Criteria for Waiver.** If the applicant can demonstrate that the increased density cannot physically be accommodated on the site, then the following development standards shall be waived during site plan review to accommodate the increased density. The waiver in the standards shall follow the priority order established and the applicant shall demonstrate that the increased density cannot be accommodated with each sequential waiver before the waiver of the next standard is allowed. Only one (1) standard shall be waived unless it is shown that each individual standard waiver will not physically accommodate the proposed density. A complete site plan and floor plan shall be provided to demonstrate the physical noncompliance.

B. **Priority order for waiver:**

1. Percentage compact parking;
2. Tandem parking design limitations;
3. Privacy standards;
4. Private open space;
5. Common open space;
6. Height;
7. Distance between buildings;
8. Side yard setbacks;

9. Rear yard setbacks;

10. Number of parking spaces (but not less than one (1) space per unit); and

11. Front setbacks.

(ORD-06-0045 § 1 (part), 2006: Ord. C-6822 § 20 (part), 1990)

21.63.090 Additional financial incentives.

If the developer believes that with the density bonus and the additional incentives, the provision of the very low income, low income, moderate income condominiums, or senior citizen housing units are not financially feasible, then the developer shall submit a project pro forma demonstrating the deficiency. Such pro forma shall include the costs of complying with each of the above-listed standards. These standards shall then be sequentially waived until financial feasibility is achieved.

(ORD-06-0045 § 1 (part), 2006: Ord. C-6822 § 20 (part), 1990)

CHAPTER 21.64 TRANSPORTATION DEMAND AND TRIP REDUCTION MEASURES

21.64.010 Purpose and intent.

A. The Legislature of the State of California has found that the lack of an integrated transportation system and the increase in the number of vehicles are causing traffic congestion that each day results in hundreds of thousands of hours lost in traffic, tons of pollutants released into the air and millions of dollars of added costs to the motoring public. It has, therefore, adopted legislation requiring the preparation and implementation of a Congestion Management Program ("CMP") by County Transportation Commissions or other public agencies of every County that includes an urbanized area.

B. The Los Angeles County Metropolitan Transportation Authority ("MTA") is responsible for the preparation of the CMP for Los Angeles County ("County").

C. The CMP must contain a trip reduction and travel demand management element that promotes alternative transportation methods, such as carpools, vanpools, transit, bicycles, walking and park-and-ride lots, improvement in the balance between jobs and housing, and other strategies, including flexible work hours, telecommuting and parking management programs.

D. The County and every City within the County is required by State law to adopt and implement a Transportation Demand Management ("TDM") ordinance as an important element of the CMP to improve both congestion and air quality.

E. LACTC must determine annually whether the County and cities within the County are conforming to the CMP, including the requirement to adopt and implement a TDM ordinance.

F. The State Clean Air Act requires regions to attain a 1.5 vehicle occupancy during the commute period by the year 1999.

G. This Chapter 21.64 is intended to comply with the CMP's requirements for a TDM ordinance. The requirements of South Coast Air Quality Management District ("District") Regulation XV, are separate from this Chapter, and administered by the District. Nothing herein is intended, nor shall it be construed, to limit or otherwise preclude employers from offering or providing additional inducements to use alternatives to single-occupant vehicles to their employees necessary to meet Regulation XV requirements.

H. In order to use the existing and planned transportation infrastructure more efficiently, maintain or improve traffic levels of service, and lower motor vehicle emissions, it is the policy of the City to minimize the number of peak period vehicle trips generated by additional development, promote the use of alternative transportation, improve air quality and participate in regional and County-wide efforts to improve transportation demand management.

(Ord. C-7092 § 2 (part), 1993)

21.64.020 Definitions.

The following words or phrases shall have the following meanings when used in this Chapter:

A. "Alternative transportation" means the use of modes of transportation other than the single passenger motor vehicle, including but not limited to carpools, vanpools, buspools, public transit, walking and bicycling.

B. "Applicable development" means any development project that is determined to meet or exceed the project size threshold criteria contained in Section 21.64.030.

C. "Buspool" means a vehicle carrying sixteen or more passengers commuting on a regular basis to and from work with a fixed route, according to a fixed schedule.

D. "Carpool" means a vehicle carrying two (2) to six (6) persons commuting together to and from work on a regular basis.

E. "California Environmental Quality Act (CEQA)" is a statute that requires all jurisdictions in the State of California to evaluate the extent of environmental degradation posed by proposed development.

F. "Developer" shall mean the builder who is responsible for the planning, design and construction of an applicable development project. A developer may be responsible for implementing the provisions of this Chapter as determined by the property owner.

G. "Employee parking area" means the portion of total required parking at a development used by on-site employees. Employee parking shall be calculated as follows:

Type of Use	Percent of Total Required Parking Devoted to Employees
Commercial	30%
Office/professional	85%

Type of Use	Percent of Total Required Parking Devoted to Employees
Industrial/manufacturing	90%

H. "Preferential parking" means parking spaces designated or assigned, through use of a sign or painted space markings, for carpool and vanpool vehicles carrying commute passengers on a regular basis that are provided in a location more convenient to a place of employment than parking spaces provided for single-occupant vehicles.

I. "Property owner" means the legal owner of a development who serves as the lessor to a tenant. The property owner shall be responsible for complying with the provisions of this Chapter either directly or by delegating such responsibility as appropriate to a tenant and/or his agent.

J. "South Coast Air Quality Management District (SCAQMD)" is the regional authority appointed by the California State Legislature to meet federal standards and otherwise improve air quality in the South Coast Air Basin (the nondesert portions of Los Angeles, Orange, Riverside, and San Bernardino Counties).

K. "Tenant" means the lessee of facility space at an applicable development project.

L. "Transportation Demand Management (TDM)" means the alteration of travel behavior, usually on the part of commuters, through programs of incentives, services, and policies. TDM addresses alternatives to single occupant vehicles such as carpooling and vanpooling, and changes in work schedules that move trips out of the peak period or eliminate them altogether (as is the case in telecommuting or compressed work weeks).

M. "Trip reduction" means reduction in the number of work-related trips made by single-occupant vehicles.

N. "Vanpool" means a vehicle carrying seven (7) or more persons commuting together to and from work on a regular basis, usually in a vehicle with a seating arrangement designed to carry seven to fifteen (15) adult passengers and on a prepaid subscription basis.

O. "Vehicle" means any motorized form of transportation, including but not limited to automobiles, vans, buses and motorcycles. (Also see the definition for "recreational vehicle" in Section 21.15.2270.)

(Ord. C-7092 § 2 (part), 1993)

21.64.030 Transportation demand and trip reduction measures.

A. **Applicability.** Prior to approval of any development project, the applicant shall make provision for, as a minimum, all of the following applicable transportation demand management and trip reduction measures.

1. This Chapter shall not apply to projects for which a development application has been deemed "complete" by the City pursuant to Government Code Section 65943, or for which a NOP for a draft EIR has been circulated or for which an application for a building permit has been received prior to the effective date of this Chapter.

2. All facilities and improvements constructed or otherwise required shall be maintained in a state of good repair.

3. Additions to buildings which existed prior to April 1, 1993 and which exceed the thresholds defined in this Section shall comply with the applicable requirements but shall not be added cumulatively with existing square footage; existing square footage shall be exempt from these requirements. All calculations shall be based on gross square footage.

B. **Development Standards.**

1. Nonresidential development of twenty-five thousand (25,000) square feet or more shall provide the following to the satisfaction of the City:

   a. A bulletin board, display case, or kiosk displaying transportation information located where the greatest number of employees are likely to see it. Information in the area shall include, but is not limited to the following:

      i. Current maps, routes and schedules for public transit routes serving the site;

      ii. Telephone numbers for referrals on transportation information including numbers for the regional ridesharing agency and local transit operators;

      iii. Ridesharing promotional material supplied by commuter-oriented organizations;

      iv. Bicycle route and facility information, including regional/local bicycle maps and bicycle safety information; and

      v. A listing of facilities available for carpoolers, vanpoolers, bicyclists, transit riders and pedestrians at the site.

2. Nonresidential development of fifty thousand (50,000) square feet or more shall comply with Subsection B.1 of this Section and shall provide all of the following measures to the satisfaction of the City:

   a. Not less than ten percent (10%) of employee parking area shall be located as close as is practical to the employee entrance(s), and shall be reserved for use by potential carpool/vanpool vehicles, without displacing handicapped and customer parking needs. This preferential carpool/vanpool parking area shall be identified on the site plan upon application for building permit, to the satisfaction of the City. A statement that preferential carpool/vanpool spaces for employees are available and a description of the method for obtaining such spaces must be included on the required Transportation Information Board. Spaces will be signed/striped as demand warrants; provided, that at all times at least one (1) space for projects of fifty thousand (50,000) square feet to one hundred thousand (100,000) square feet and two (2) spaces for projects over one hundred thousand (100,000) square feet will be signed/striped for carpool/vanpool vehicles.

   b. Preferential parking spaces reserved for vanpools must be accessible to vanpool vehicles. When located within a parking structure, a minimum vertical interior clearance of seven feet

(7') two inches (2") shall be provided for those spaces and accessways to be used by such vehicles. Adequate turning radii and parking space dimensions shall also be included in vanpool parking areas.

c. Bicycle racks or other secure bicycle parking shall be provided to accommodate four (4) bicycles per the first fifty thousand (50,000) square feet of nonresidential development and one (1) bicycle per each additional fifty thousand (50,000) square feet of nonresidential development. Calculations which result in a fraction of 0.5 or higher shall be rounded up to the nearest whole number. A bicycle parking facility may also be a fully enclosed space or locker accessible only to the owner or operator of the bicycle, which protects the bike from inclement weather. Specific facilities and location (e.g., provision of racks, lockers, or locked room) shall be to the satisfaction of the City.

3. Nonresidential development of one hundred thousand (100,000) square feet or more shall comply with Subsections B.1 and 2 of this Section, and shall provide all of the following measures to the satisfaction of the City:

a. A safe and convenient zone in which vanpool and carpool vehicles may deliver or board their passengers:

b. Sidewalks or other designated pathways following direct and safe routes from the external pedestrian circulation system to each building in the development:

c. If determined necessary by the City to mitigate the project impact, bus stop improvements must be provided. The City will consult with the local bus service providers in determining appropriate improvements. When locating bus stops and/or planning building entrances, entrances must be designed to provide safe and efficient access to nearby transit stations/ stops:

d. Safe and convenient access from the external circulation system to bicycle parking facilities on-site.

(Ord. C-7092 § 2 (part), 1993)

CHAPTER 21.65 INTERIM MOTEL/HOTEL CONVERSIONS*

21.65.010 Purpose.

This Chapter establishes a process by which existing transient residential structures, such as motels and hotels in the City of Long Beach can be converted on a temporary basis to supportive or transitional housing for persons experiencing homelessness or those at risk of homelessness. Under this Chapter, the structure may return to its previous use, or any use consistent with the underlying zoning, upon termination of the supportive or transitional housing use.

(ORD-20-0041 § 1, 2020)

***Editor's note—**Formerly, Ch. 21.65, §§ 21.65.010—21.65.210 entitled "Tenant Relocation and Code Enforcement," was repealed by ORD-13-0024 § 2, adopted Nov. 12, 2013, which derived from ORD-05-0007 § 1(part), 2006. See Ch. 18.25 for similar provisions.

21.65.020 Definitions.

In addition to the definitions set forth in Chapter 21.15, the following definitions shall apply to this Chapter 21.65:

A. "Interim Motel/Hotel Housing Project" is defined as the physical re-purposing or adaptive reuse of an existing transient residential structure, such as a Motel, Hotel, Apartment Hotel, Transient Occupancy Residential Structure, or Hostel, for use as Supportive Housing or Transitional Housing for persons experiencing homelessness or those at risk of homelessness.

B. "Interim Motel/Hotel Conversion Permit" is a permit issued by the Department of Development Services Planning Bureau, upon satisfaction of the requirements of this Section, to an eligible applicant to allow the temporary conversion of an existing transient residential structure, such as a Motel, Hotel, Apartment Hotel, Transient Occupancy Residential Structure, or Hostel, for use as Supportive Housing or Transitional Housing for persons experiencing homelessness or those at risk of homelessness.

C. "Local Agency" is defined as an agency that funds and/or operates subsidized Supportive Housing and/or Transitional Housing for persons experiencing homelessness or at risk of homelessness and/or provides on-site supportive social services such as intensive case management, employment services, benefits advocacy, and other services or service referrals necessary to obtain and maintain housing.

(ORD-20-0041 § 1, 2020)

21.65.030 Qualification.

All or, within the coastal zone, portions of Dwelling Units and Guest Rooms in the structure must be used for Supportive Housing or Transitional Housing or a combination of both. The Interim Motel/Hotel Housing Project shall not result in the expansion of more than ten (10) percent of the existing building floor area; nor shall the combined number of Dwelling Units or Guest Rooms increase from the number existing on site prior to the date of the Interim Motel/Hotel Housing Project application. Any Floor Area used for onsite Supportive Services shall be considered accessory to the residential use.

(ORD-23-0025 § 3, 2023 ORD-20-0041 § 1, 2020)

21.65.040 Application and Approval.

A. The Department of Development Services in coordination with the Department of Health and Human Services shall review all Interim Motel/Hotel Housing Projects for zoning compliance as described in Section 21.65.060, and adherence to the performance standards in Section 21.65.070. The Interim Motel/Hotel Housing Project shall be approved if the application requirements, zoning compliance and performance standards of this Chapter are met through the approval process, including but not limited to, payment of all applicable fees. Interim Motel/Hotel Housing Projects shall not be considered a change of use under Title 21 of the Long Beach Municipal Code, nor an increase in density or other change which requires any corresponding discretionary action.

B. Prior to issuance of an Interim Motel/Hotel Conversion Permit, the applicant shall provide a copy of an executed agreement between the Local Agency and the Interim Motel/Hotel Housing Project applicant setting forth the terms for the provision of the of onsite Supportive Housing or Transitional Housing, or a combination of both, and the provision of on-site social services; proof that the applicant has received funding from a Local Agency; and proof that the Supportive Housing or Transitional Housing agreement is in effect.

(ORD-20-0041 § 1, 2020)

21.65.050 Termination of Supportive Housing or Transitional Housing Agreement.

Upon any termination of the Supportive Housing or Transitional Housing agreement, the Interim Motel/Hotel Housing Project applicant shall be required, within ninety (90) days, to notify the Department of Development Services and to complete one of the following:

A. Submit an application to the Department of Development Services to return to the original use existing on the Interim Motel/Hotel Housing Project application, or to any use permitted by the current zoning regulations; or

B. Provide a copy of a new executed agreement to the Department of Development Services, in accordance with the requirements in Section 21.54.040, to begin a new agreement term for the provision of Supportive or Transitional Housing.

(ORD-20-0041 § 1, 2020)

21.65.060 Compliance with applicable standards and zoning code requirements.

A. Outside the coastal zone, Interim Motel/Housing Projects shall not be subject to any otherwise applicable zoning ordinance, specific plan, or other overlay district regulations, including, but not limited to, the following:

1. Minimum Area per Dwelling Unit or Guest Room. A structure that is occupied with a use classified as a Motel, Hotel, Apartment Hotel, Transient Occupancy Residential Structure, or Hostel, regardless of any nonconforming status as to the area and density regulations of the underlying zone, may be used for an Interim Motel/Hotel Housing Project, provided that the conversion does not create any additional total combined number of Dwelling Units or Guest Rooms.

2. Off-Street Automobile Parking. Interim Motel/Hotel Housing Projects shall be exempt from the requirements of LBMC Chapter 21.41 during the Supportive Housing or Transitional Housing agreement, however, the Interim Motel/Hotel Housing Project shall maintain and not reduce the number of onsite parking spaces existing on the date of the Interim Motel/Hotel Housing Project application.

3. Use. Notwithstanding the use provisions of the underlying zone, an Interim Motel/Hotel Housing Project shall be permitted.

4. Change of Use. Section 21.27.070 shall not apply to Interim Motel/Hotel Housing Projects.

5. Change of Occupancy. To the extent that an Interim Motel/Hotel Housing Project is considered a change of occupancy, the change in occupancy shall be construed to be an occupancy group that is less hazardous than the original use, and building code compliance shall be limited to the requirements of Section 18.49.030, as determined by the Building Official.

6. Notwithstanding any exemptions from building and zoning requirements detailed in this Section, an Interim Motel/Hotel Housing Project shall comply with minimum applicable health and safety requirements established in Title 18, as determined by the Building Official.

B. Within the coastal zone, Interim Motel/Hotel Housing Projects, as defined in Section 21.65.020.A of this Chapter, shall not be subject to any otherwise applicable zoning ordinance, specific plan, or other overlay district regulations except for the City's certified Local Coastal Program (LCP) Land Use Plan and any regulations in the certified LCP Implementation Plan that are required for the protection of public access and coastal resources, including lower cost overnight visitor-serving accommodations. Interim Motel/Hotel Housing Projects require a coastal development permit consistent with Section 21.25.904.C of the certified Zoning Code.

C. Minor Interior Alterations for Cooking Facilities. Approved Interim Motel/Hotel Housing Project applicants may make minor interior alterations adding cooking facilities, including a sink, a refrigerator not exceeding ten (10) cubic feet, counter space not exceeding ten (10) square feet, and a hotplate, microwave, or other cooking facilities to Guest Rooms. In the event a structure is returned to the motel or hotel use, in accordance with Section 21.65.040, the motel or hotel may maintain any Guest Rooms with added cooking facilities.

D. Preservation of Nonconforming Rights. Upon termination of the Supportive Housing or Transitional Housing use, any structure that is nonconforming as to area or use regulations, or any other zoning code requirements, may return to the use and condition as it existed on the date of the Interim Motel Housing Project application, notwithstanding any physical alterations to the subject property. Any Floor Area used for Supportive Services may be returned to use as Guest Rooms or Dwelling Units, or may be converted to accessory amenity spaces, so long as the total number of Dwelling Units or Guest Rooms do not exceed the number existing at the time of the application for the Interim Motel Housing Project.

(ORD-23-0025 § 4, 2023; ORD-20-0041 § 1, 2020)

21.65.070 Performance standards.

The Interim Motel/Hotel Housing Project shall meet the following performance standards:

A. Public Outreach Requirement. At the time of Interim Motel/Hotel Conversion Permit application, and prior to the issuance of any permits for an Interim Motel/Hotel Housing Project, the operator and/or Local Agency shall conduct outreach to the surrounding community, to the satisfaction of the Director of Development Services. Public Outreach may include, but is not limited to, mailed notification, or the convening of a public meeting or other similar public forum for the purpose of seeking input from the surrounding community. The applicant shall provide copies of mailed notices, meeting flyers and/or meeting summaries or notes, or other relevant documentation to the satisfaction of the Director of Development Services as evidence that this requirement has been fulfilled.

B. Supportive Service Area. A minimum area of office space shall be provided within an Interim Motel/Hotel Housing Project for the provision of on-site Supportive Services, including case management.

C. Lighting. Security night lighting shall be shielded so that the light source cannot be seen from adjacent residential properties.

D. Security Lighting. Security lighting with illumination of not less than 0.2 foot-candles (2.15 lx) shall be provided in parking areas, alleys and any unenclosed spaces under or within the first floor of the building(s).

E. Recycling and Trash Facilities. Any recycling or trash facilities shall be secured and completely enclosed by a solid wall or fence not less than six (6) feet in height.

F. Historic Buildings. An Interim Motel/Hotel Housing Project shall not involve alteration of an historic character defining feature identified in a nomination or a survey for any project affecting a property listed in or formally determined eligible for a national, state, or local historic register, individually or as a contributor to a historic district, unless the Director of Development Services determines the proposed alteration will not adversely impact the property's historic eligibility.

(ORD-20-0041 § 1, 2020)

21.65.080 Alternative Compliance.

If compliance with the Performance Standards is not met, the applicant may apply for approval of alternative compliance measures. The requirements in Sections 21.65.030 and 21.65.040 must be met in order to qualify for an alternative compliance review. In approving the alternative compliance application, the Director of Development Services shall find that the Interim Motel/Hotel Housing Project substantially meets the purposes of the Performance Standards, including that it provides an appropriate level of Supportive Services that is accessible to the residents of the Supportive Housing or Transitional Housing.

(ORD-20-0041 § 1, 2020)

CHAPTER 21.66 UNPERMITTED DWELLING UNIT AMNESTY PROGRAM

21.66.010 Purpose.

To develop a dwelling unit amnesty program to preserve existing dwellings, bring them into compliance with applicable Building Code standards, and maintain them as income restricted affordable units in accordance with recommendation 2e of the "Everyone Home Long Beach" plan "to expand the number of rent-stabilized units," and Policy 1.1 of the 2017 report prepared by the Mayor's Affordable and Workforce Housing Study Group and adopted by City Council "to encourage the preservation of existing housing stock, consistent with the City's adopted Housing Element." This Section is not intended for housing units that are eligible for legalization as accessory dwelling units through the Accessory Dwelling Unit (ADU) process.

(ORD-21-0002 § 1, 2021)

21.66.020 Compliance with applicable development standards and Zoning Code requirements.

A. Existing dwelling units that do not have a certificate of occupancy at the time of application that are located in otherwise legally permitted structures, shall be referred to in this section as "unpermitted dwelling units." Outside the coastal zone, existing unpermitted dwelling units shall not be subject to any otherwise applicable zoning ordinance, specific plan, or other overlay district regulations, including, but not limited to, the following:

1. Minimum Lot Area per Dwelling Unit or Guest Room. The units shall not be subject to any density limitations imposed by the underlying zoning.

2. Off-set Automobile Parking. The units shall not be subject to any applicable off-street automobile parking requirements. The existing number of parking spaces existing on the site as of the date of the application shall be maintained and shall not be reduced.

3. Minimum Yard and Setback Requirements. The units shall not be subject to any yard or setback requirements imposed by the underlying zoning.

4. Any Other Development Standards. The units shall not be subject to any other provision of the underlying zoning or applicable development standards that would preclude the preservation of the dwelling unit.

B. Within the coastal zone, existing unpermitted dwelling units as defined in Section 21.66.020.A of this Chapter, shall not be subject to any otherwise applicable zoning ordinance, specific plan, or other overlay district regulations except for the City's certified Local Coastal Program (LCP) Land Use Plan and any regulations in the certified LCP Implementation Plan that are required for the protection of coastal resources and public access to the coast. Unpermitted dwelling units are subject to the required findings in the certified Zoning Code Section 21.25.904.C. New parking spaces shall not be required in association with the legalization of an unpermitted dwelling unit if the unpermitted dwelling unit(s) meets one of the following criteria and/or there would be no impacts to public access to the coast as a result of the development:

1. The unpermitted dwelling unit is located within one-half mile walking distance of public transit.

2. The unpermitted dwelling unit is located within an architecturally and historically significant historic district and the provision of new parking would impact the historic character.

3. When there is a car share vehicle located within one block of the unpermitted dwelling unit.

(ORD-23-0025 § 5, 2023; ORD-21-0002 § 1, 2021)

21.66.030 Building Code Compliance.

Notwithstanding any exemptions to zoning requirements detailed in this Section, the units shall comply with minimum applicable health and safety requirements established in Title 18, as determined by the Building Official.

(ORD-21-0002 § 1, 2021)

21.66.040 Eligibility.

Existing dwelling units eligible for the unpermitted dwelling unit amnesty program:

A. May be located in any zone, except for the IG and IP Industrial Zones;

B. Shall have been occupied, as a residence, for more that thirty (30) continuous days prior to December 31, 2016, which occupancy shall be demonstrated by the Applicant with proof satisfactory to the Director of Development Services, or designee.

(ORD-23-0025 § 6, 2023; ORD-21-0002 § 1, 2021)

21.66.050 Affordability Covenant.

A. Applicants shall be required to record a covenant on the property that requires the unit to be retained as an income-restricted unit for a period of 10 years at an income level that is the lower of: 1) the existing tenant's income level; or 2) a moderate-income household, as determined by Area Median Income (AMI) limits established by the Department of Housing and Urban Development (HUD).

B. The affordability period shall be deferred if the unit is occupied by a tenant with an existing lease who does not meet the subject income restriction. The affordability period shall begin when a tenant meeting the above income restriction occupies the unit.

C. The units shall be subject to the annual covenant monitoring fee.

(ORD-21-0002 § 1, 2021)

21.66.060 Review Process.

Site Plan Review shall be required pursuant to Chapter 21.25 of the certified Zoning Code. Existing dwelling units that are eligible for the unpermitted dwelling unit amnesty program and are located in the Coastal Zone shall be required to obtain a Local Coastal Development Permit pursuant to certified Zoning Code Section 21.25.903; however, a public hearing for the Local Coastal Development Permit shall not be required pursuant to certified Zoning Code Section 21.25.904.B.

(ORD-23-0025 § 7, 2023; ORD-21-0002 § 1, 2021)

21.66.070 Appeals.

Outside the coastal zone, only applicants may appeal Site Plan Review determinations to the Planning Commission. Within the coastal zone, Local Coastal Development Permit determinations may be appealed by any aggrieved person pursuant to the procedures in Chapter 21.21 and Section 21.25.904 of the certified Zoning Code.

(ORD-23-0025 § 8, 2023; ORD-21-0002 § 1, 2021)

CHAPTER 21.67 INCLUSIONARY HOUSING

21.67.010 Purpose.

The City Council finds that the City of Long Beach faces a serious shortage of affordable housing units that is anticipated to increase over time. New residential development frequently does not provide housing opportunities for very low-, low- and moderate-income households due to the high cost of newly-constructed housing in the City. As a result, such households are effectively excluded from many neighborhoods, creating economic stratification detrimental to the public health, safety, and welfare. The purpose of this Chapter is:

A. To impose affordable housing requirements on residential development to avoid the remaining opportunities for affordable housing to be lost by the use of the scarce remaining land for residential development without providing housing affordable to persons and households of all incomes.

B. To enhance the public welfare by establishing policies which require the development of housing affordable to households of very low-, low- and moderate-incomes, help meet the City's regional share of housing needs and implement the goals and objectives of the City's General Plan and Housing element.

C. To provide and maintain affordable housing opportunities in the community through an inclusionary housing program for both ownership and rental housing, and in furtherance of that goal, include rental inclusionary housing requirements in this Chapter consistent with California Government Code Section 65850(g).

D. To provide the residential development community with alternatives to construction of the inclusionary units within a market-rate residential development.

(ORD-25-0004 § 1, 2025; ORD-22-0004 § 1, 2022; ORD-21-0006 § 1, 2021)

21.67.020 Definitions.

The definitions set forth in this Section shall govern the application and interpretation of this Chapter. Words and phrases not defined in this Section shall be interpreted so as to give this Chapter its most reasonable application.

A. "Adjusted for Household Size Appropriate for the Unit" means the household sizes defined in California Health and Safety Code Section 50052.5. This adjustment is used solely for the purposes of calculating the affordable rent and affordable sales price. For this purpose only, the household size is set at the number of bedrooms in the unit plus one.

B. "Affordable Rent" means the maximum monthly rent, including an allowance for tenant paid utilities, for: (i) very low-income households as defined in California Health and Safety Code Section 50053, or (ii) low-income households, as defined in California Health and Safety Code

Section 50053. The calculation is as follows: (i) one-twelfth of thirty percent (30%) of the applicable percent (50% or 60%) of area median income adjusted for household size appropriate for the unit; or (ii) market rent, whichever is less.

C. "Affordable Sales Price" means the maximum purchase price for moderate-income households as defined in California Health and Safety Code Section 50052.5. The calculation is as follows: not be less than twenty-eight percent (28%) of the gross income of the household, nor exceed thirty-five percent (35%) times the applicable percentage of area median income as shown in Table 21.67-2, adjusted for household size appropriate for the unit. The affordable sales price shall include a reasonable down payment, and monthly housing cost payments as defined in California Code of Regulations, Title 25, Section 6920. These payments include principal and interest on a mortgage loan, private mortgage insurance, property taxes and assessments, a utility allowance established by the Housing Authority of the City of Long Beach, homeowner's insurance, homeowner's association dues, and a reasonable allowance for property maintenance and repairs, all as determined by the City.

D. "Applicant" or "Developer" means a person, persons, or entity that applies for a residential development and also includes the owner or owners of the property if the applicant does not own the property on which residential development is proposed.

E. "Approval Body" means a body with the authority to approve the proposed residential development or any component thereof.

F. "Area Median Income" means the annual median income for Los Angeles County, adjusted for household size, as published periodically in the California Code of Regulations, Title 25, Section 6932, or its successor provision, or as established by the City in the event that such median income figures are no longer published periodically in the California Code of Regulations.

G. "Building Permit" includes full structural building permits as well as partial permits such as foundation-only permits.

H. "Common Ownership or Control" refers to property owned or controlled by the same person, persons, or entity, or by separate entities in which any shareholder, partner, member (or family member of such shareholder, partner or member) of the entity owns ten percent (10%) or more of the interest in the property.

I. "Contiguous Property" means any parcel of land that is:

1. Touching another parcel at any point;

2. Separated from another parcel at any point only by a public right-of-way, private street or way, or public or private utility, service, or access easement; or

3. Separated from another parcel only by other real property of the applicant which is not subject to the requirements of this Chapter at the time of the planning entitlement application by the applicant.

J. "Density Bonus Units" means dwelling units approved in a residential development pursuant to California Government Code Section 65915 et seq., Chapter 21.63, or Chapter 21.68 of the Long Beach Municipal Code that are in excess of the maximum allowable residential density otherwise permitted by the City.

K. "Downtown Submarket" means those areas of the City located within the Downtown Plan Area (PD-30) as delineated on the City's Zoning Use District Map.

L. "First Approval" means the first of the following approvals to occur with respect to a residential development after the effective date of this Chapter: planning entitlement or building permit.

M. "First Time Home Buyer" means an individual who meets any of the following criteria:

1. An individual who has had no ownership in a principal residence during the 3-year period ending on the date of purchase of the property. This includes a spouse (if either meets the above test, they are considered first-time homebuyers).

2. A single parent who has only owned with a former spouse while married.

3. An individual who is a displaced homemaker and has only owned with a spouse.

4. An individual who has only owned a principal residence not permanently affixed to a permanent foundation in accordance with applicable regulations.

5. An individual who has only owned a property that was not in compliance with state, local or model building codes and which cannot be brought into compliance for less than the cost of constructing a permanent structure.

N. "HCD" means the California Department of Housing and Community Development.

O. "High Resource Area" means those areas designated as high resource areas on the Submarket Areas Map.

P. "Housing Element" means the then-current Housing Element of the City's General Plan prepared in accordance with state housing law.

Q. "Housing Trust Fund" means the fund or account established by Section 3.92 of the Long Beach Municipal Code.

R. "Inclusionary Housing Regulatory Agreement" means an agreement in conformance with Section 21.67.090.B between the City and an applicant, governing how the applicant shall comply with this Chapter.

S. "Inclusionary Housing Guidelines" means any requirements for implementation and administration of this Chapter adopted by the City in accordance with Section 21.67.090.D. For developments within the coastal zone, those requirements must be consistent with the policies of the LCP, including this Chapter. In any case of conflict between the Inclusionary Housing Guidelines and the policies of the LCP, the policies of the LCP shall take precedence over the guidelines.

T. "Inclusionary Housing Plan" means a plan containing all of the information specified in and submitted in conformance with Section 21.67.090.A, specifying the manner in which inclusionary units will be provided in conformance with this Chapter and the adopted inclusionary housing guidelines. For developments within the coastal zone, those guidelines must be consistent with the policies of the LCP, including this Chapter. In any case of conflict between the Inclusionary Housing Guidelines and the policies of the LCP, the policies of the LCP shall take precedence over the guidelines.

U. "Inclusionary Unit" means a dwelling unit required by this Chapter to be affordable to very low-, low- or moderate-income households, as applicable, and subject to an inclusionary housing regulatory agreement.

V. "Low-Income Households" are those households whose income does not exceed eighty percent (80%) of the area median income as published annually by HCD, adjusted for the actual number of persons in the household.

W. "Low Resource Area" means those areas designated as low resource areas on the Submarket Areas Map.

X. "Market-Rate Unit" means a new dwelling unit in a residential development that is not an inclusionary unit subject to recorded affordability restrictions that meet the requirements of this Chapter.

Y. "Midtown Submarket" means those areas of the City within the Midtown Plan Area (SP-1) as delineated on the City's Zoning Use District Map.

Z. "Moderate-Income Households" are those households whose income does not exceed one hundred twenty percent (120%) of the area median income as published annually by HCD, adjusted for the actual number of persons in the household.

AA. "Moderate Resource Area" means those areas designated as moderate resource areas on the Submarket Areas Map.

BB. "Ownership Residential Development" means: (i) any residential development that includes the creation of one or more dwelling units that may be sold individually, and (ii) any community apartment project or residential development owned by a residential stock cooperative wherein owners own an undivided interest in the development together with the right to occupy a dwelling unit, commonly known as "own-your-owns". A residential ownership development also includes the conversion of a residential rental development to a residential ownership development pursuant to Chapter 20.32 of the Long Beach Municipal Code. If dwelling units are approved with a condominium map but are not yet sold individually on the open market or otherwise to persons unaffiliated with the original developer of the dwelling units, such development shall be considered a rental residential development subject to the requirements of Section 21.67.050.A.2 until such time as it converts to an ownership residential development, at which time the development shall be subject to the requirements of Section 21.67.050.A.1.

CC. "Planning Entitlement" means any discretionary approval of a residential development including, but not limited to, a general or specific plan adoption or amendment, rezoning, tentative map, parcel map, conditional use permit, variances, site plan review, or local coastal development permit.

DD. "Rental Residential Development" means any residential development that creates one or more dwelling units that cannot be lawfully sold individually in conformance with the Subdivision Map Act.

EE. "Residential Development" means any development for which a planning entitlement or building permit is required that includes:

1. The creation of one or more additional dwelling units;

2. Conversion of nonresidential uses to dwelling units; or

3. The conversion of a use from a residential rental development to a residential ownership development.

FF. "Submarket(s)" means the Downtown Submarket, the Midtown Submarket, the High Resource Area, the Low Resource Area and the Moderate Resource Area, or any applicable combination thereof.

GG. "Submarket Areas Map" means that certain map prepared and published by the City Community Development Department assigning all parcels of real property within the City of Long Beach to a Submarket. For any changes to the Submarket Areas Map as adopted by the City on April 1, 2025 that result in lower percentages of total required inclusionary housing units within the coastal zone, the City Council shall submit an LCP amendment request to the California Coastal Commission for its review and approval.

HH. "Very Low-Income Household" are those households whose income does not exceed 50 percent (50%) of the area median income as published annually by HCD, adjusted for the actual number of persons in the household.

(ORD-26-0014 §§ 1—3, 2026; ORD-25-0004 § 2, 2025; ORD-22-0004 § 1, 2022; ORD-21-0006 § 1, 2021)

21.67.030 Applicability.

The provisions of this Chapter shall apply to:

A. All residential development located in the City of Long Beach except for any residential development exempt under Section 21.67.040.

(ORD-25-0004 § 3, 2025; ORD-22-0004 § 1, 2022; ORD-21-0006 § 1, 2021)

21.67.040 Exemptions.

A. The following residential developments shall be exempt from the provisions of this Chapter:

1. Residential developments with nine (9) or fewer units.

2. Residential developments which are developed in accordance with the terms of a development agreement adopted by ordinance pursuant to the authority and provisions of California Government Code Section 65864 et seq. and/or Chapter 21.29 of the Long Beach Municipal Code, and that is executed prior to the effective date of this Chapter, provided that such residential developments shall comply with any inclusionary housing requirements included in the development agreement or any predecessor ordinance in effect on the date the development agreement was executed.

3. Residential developments exempted by California Government Code Section 66474.2 or 66498.1, provided that such residential developments shall comply with any predecessor ordinance, resolution, or policy in effect on the date the application for the development was deemed substantially complete.

4. Residential developments for which a building permit has been issued no later than the effective date of this Chapter, provided that such residential developments shall comply with any predecessor ordinance, resolution, or policy in effect on the date the application for the development was approved.

5. Residential developments in which at least forty-nine percent (49%) of the total units will be restricted by a recorded regulatory agreement to very-low or low-income households.

B. Planning entitlement expiration. Upon the expiration of any planning entitlement, and unless otherwise exempted, the residential development shall be subject to the inclusionary housing requirements of this Chapter in effect as of the date of such expiration, and shall not proceed until such time as an inclusionary housing plan is approved in conjunction with any other required planning entitlement or amendment thereto. The provisions of this Chapter shall also apply to any residential development which is granted a discretionary extension of a planning entitlement after the effective date of this Chapter, to the extent consistent with state law.

(ORD-25-0004 § 4, 2025; ORD-22-0004 § 1, 2022; ORD-21-0006 § 1, 2021)

21.67.050 Inclusionary Housing Requirement.

All residential developments proposing ten (10) or more dwelling units (unless exempt under Section 21.67.040), and contiguous property under common ownership and control, shall include inclusionary units.

A. On-site inclusionary requirement. Unless an alternative is approved as described in Section 21.67.080, residential developments subject to this Chapter shall provide certain dwelling units in the residential development as inclusionary units upon the same site as the residential development as follows:

1. Ownership residential development in the Downtown Submarket and the Midtown Submarket prior to 2025. For all applications for first approval of an ownership residential development in the Downtown Submarket or Midtown Submarket submitted prior to calendar year 2025, the applicant shall provide the applicable percentage of the units in the residential development available at an affordable sales price to moderate-income households, in accordance with Table 21.67-1.

Table 21.67-1
Inclusionary Housing Requirements for Ownership Developments 2021-2024

Calendar Year	Moderate Income Affordability Level (Percentage of Area Median Income)	Inclusionary Requirement Percentage of units in the development
2021	120%	4%
2022	120%	5%
2023 & 2024	120%	10%

2. Ownership residential development in the City of Long Beach during 2025 and thereafter. For all applications for first approval of an ownership residential development in the City of Long Beach submitted beginning on the effective date during calendar year 2025 and thereafter, the applicant shall provide the applicable percentage of the units in the residential development available at an affordable sales price to households at the specific income levels provided, each in accordance with Table 21.67-2, and the inclusionary units required hereunder must be sold to First Time Home Buyers.

Table 21.67-2
Inclusionary Housing Requirements for Ownership Developments Beginning 2025

Milestone Threshold	Affordability Level (Percentage of Area Median for Household Eligibility Determination)	Affordability Level (Percentage of Area Median Income for Affordable Sales Price Determination)	Inclusionary Requirement Percentage of units in the development
Beginning on the effective date in 2025 and continuing through the later of: (i) December 31, 2026; or (ii) the date on which at least 200 new units within Ownership Residential Developments are entitled City-wide ("First Inclusionary Milestone").	200%	200%	10%
Beginning on the date immediately after the First Inclusionary Milestone and continuing through the later of: (i) the first anniversary of the First Inclusionary Milestone; or (ii) the date on which at least 200 new units within Ownership Residential Developments are entitled City-wide (in addition to those entitled prior to the First Inclusionary Milestone) ("Second Inclusionary Milestone").	150%	150%	10%

Milestone Threshold	Affordability Level (Percentage of Area Median for Household Eligibility Determination)	Affordability Level (Percentage of Area Median Income for Affordable Sales Price Determination)	Inclusionary Requirement Percentage of units in the development
Beginning on the date immediately after the Second Inclusionary Milestone and continuing through the later of: (i) the first anniversary of the Second Inclusionary Milestone; or (ii) the date on which at least 200 new units within Ownership Residential Developments are entitled City-wide (in addition to those entitled prior to the Second Inclusionary Milestone) ("Third Inclusionary Milestone").	135%	135%	10%
Beginning on the Third Inclusionary Milestone and continuing thereafter.	120%	110%	10%

3. Rental residential development in the Downtown Submarket and Midtown Submarket prior to 2025. For all applications for first approval of a rental residential development in the Downtown Submarket or Midtown Submarket submitted prior to the effective date in calendar year 2025, the applicant shall provide the applicable percentage of the units in the residential development available at an affordable rent to very low-income households in accordance with Table 21.67-3.

Table 21.67-3
Inclusionary Housing Requirements for Rental Developments 2021-2024

Calendar Year	Inclusionary Requirement Percentage of units in the development
2021	5%
2022	6%
2023 & 2024	11%

4. Rental residential development in the City of Long Beach during 2025 and thereafter. For all applications for first approval of rental residential development in the City of Long Beach submitted beginning on the effective date in calendar year 2025 and thereafter, the applicant shall provide the applicable percentage of the units in the residential development available at the applicable affordable rent levels, each in accordance with Table 21.67-4 and consistent with the Submarket Areas Map. The Submarket Areas Map depicting the Submarkets referenced in Table 21.67-4 shall be updated periodically or as necessary by the City Community Development Department, and said map and all notations, references and other information shown on it are incorporated by reference and shall be deemed as much a part of this Title as if the matters and information set forth by said map were fully described in this Chapter. For any changes to the Submarket Areas Map as adopted by the City on April 1, 2025 that result in lower percentages of total required inclusionary housing units within the coastal zone, the City Council shall submit an LCP amendment request to the California Coastal Commission for its review and approval.

Table 21.67-4
Inclusionary Housing Requirements for Rental Developments Beginning 2025

Inclusionary Housing Affordability Requirements: Rental Residential Developments				
Submarket	**Affordability Level**	**Inclusionary Requirement Percentage of Units in the Development**		
		2025	**2026**	**2027 and thereafter**
Downtown Submarket	Very Low-Income	6%		
	Low-Income	6%		
	Total:	12%		
Midtown Submarket	Low-Income	12%		
High Resource Area	Very Low-Income	4%	5%	8%
	Low-Income	2%	3%	4%
	Total:	6%	8%	12%
Moderate Resource Area	Very Low-Income	3%	4%	6%
	Low-Income	3%	4%	6%
	Total:	6%	8%	12%
Low Resource Area	Low-Income	6%	7%	12%

B. Calculating the number of inclusionary units.

1. Calculations of the number of inclusionary units required by this Section shall be based on the number of dwelling units in the residential development, excluding any density bonus units.

2. In computing the total number of inclusionary units required in a rental residential development with over 20 total units, fractions of an inclusionary unit shall be rounded up. In computing the total number of inclusionary units required in an ownership residential development or rental residential development of 20 units or less, fractions of an inclusionary unit shall either be: (i) rounded up, or (ii) provided by the payment of an in-lieu fee as established in Section 21.67.080.A. Fractional units applicable to households of different income levels in the same residential development may be added together and applied toward unit(s) at the lowest required income level. If a residential development is included in more than one Submarket, then the total number of inclusionary units shall be calculated as though the entirety of the residential development is located in a single Submarket as designated in accordance with the inclusionary housing guidelines.

3. When a residential development includes both ownership and rental dwelling units, the provisions of this Chapter that apply to ownership residential development shall apply to that portion of the development that consists of ownership dwelling units, while the provisions of this Chapter that apply to rental residential development shall apply to that portion of the development that consists of rental dwelling units.

C. Common ownership and control. An applicant for a planning entitlement shall not avoid the requirements of this Chapter by submitting piecemeal planning entitlement applications. At the time of the application for first approval for the residential development, the applicant shall identify all contiguous property under common ownership and control. The applicant shall not be required to construct dwelling units upon the contiguous property at the time of the application for first approval; however, the applicant shall be required to include the contiguous property

under common ownership or control in its inclusionary housing plan. The inclusionary housing regulatory agreement shall be recorded against the residential development and all contiguous property under common ownership or control and shall require compliance with this Chapter upon development of each contiguous property at such time as there are planning entitlement applications that would authorize a total of ten (10) or more residential units for the residential development and the contiguous property under common ownership or control.

(ORD-26-0014 § 4, 2026; ORD-25-0004 § 5, 2025; ORD-22-0004 § 1, 2022; ORD-21-0006 § 1, 2021)

21.67.060 Inclusionary Housing Standards and Incentives.

A. Inclusionary housing units included in a residential development resulting from the conversion of a use from a residential rental development to a residential ownership development shall be offered for sale to current and qualified tenants of the inclusionary units, and shall otherwise comply with the inclusionary housing guidelines.

B. Construction appearance and quality. Inclusionary units shall be comparable in exterior appearance and overall quality of construction to market-rate units in the same housing development. Interior finishes and features may differ from those provided in the market-rate units, so as long as the finishes and features are durable, of good quality, and consistent with contemporary standards for new housing.

C. Bedroom Mix and Unit Size. The number of bedrooms and the size of the inclusionary units shall be proportional to or greater than the number of bedrooms and size of the market-rate units, consistent with any adopted inclusionary housing guidelines.

D. Location. The inclusionary units shall be located so as not to create a geographic concentration of inclusionary units within the residential development.

E. Amenities. The inclusionary units shall have the same amenities as the market-rate units included within the affordable rent or affordable sales price for the inclusionary unit. For example, residents of the inclusionary units shall have the same access to and enjoyment of common open space, parking, storage, and other facilities in the residential development, and residents of the inclusionary units shall not be charged more than affordable rents or affordable sales prices as for the use of such facilities and amenities.

F. Density bonus. The developer of a residential development providing all required inclusionary units upon the same site as the market-rate units may, at the developer's sole option and concurrently with the submittal of the inclusionary housing plan, submit a written request for a density bonus, waivers, modification of parking standards, or other regulatory incentives pursuant to Government Code Section 65915 et seq., and the provisions of Chapter 21.63 of the Long Beach Municipal Code, if the residential development meets all of the applicable requirements to qualify for a density bonus.

(ORD-22-0004 § 1, 2022; ORD-21-0006 § 1, 2021)

21.67.070 Timing of Construction of Inclusionary Units.

All required inclusionary units shall be made available for occupancy prior to, or concurrently with, the market-rate units. For the purposes of this subsection, "concurrently" means one of the following:

A. The inclusionary units may be constructed in phases if the market-rate units are constructed in phases, provided that the percentage of inclusionary units developed in each phase shall be equivalent to or greater than the total percentage of inclusionary units to be developed as part of the residential development until such time that all the inclusionary units have been built.

B. In-lieu fees, if applicable, have been paid.

C. The applicant has met, or made arrangements satisfactory to the City to meet, an alternative requirement as permitted by Section 21.67.080.

(ORD-22-0004 § 1, 2022; ORD-21-0006 § 1, 2021)

21.67.080 Developers' Alternative Compliance Options.

A. In-Lieu Fee. All: (i) ownership residential developments, (ii) rental residential developments proposing twenty (20) or less dwelling units, and (iii) residential developments specifically authorized by an action of the City Council after a finding of hardship has been made, may satisfy the inclusionary housing requirement in Section 21.67.050.A by the payment of a fee to the City in-lieu of constructing the inclusionary units within the residential development. In-lieu fees may be established from time-to-time by resolution of the City Council. No building permit shall be issued by the City for any market-rate unit in the residential development until all in-lieu fees for the residential development have been paid to the City. The developer shall provide specific written notice to any purchaser of any dwelling unit prior to the acceptance of any offer to purchase, and shall obtain executed acknowledgment of the receipt of such notice, that purchaser shall not have any right to occupy the dwelling unit until such time as all in-lieu fees owing for the residential development are paid to the City. All in-lieu fees shall be deposited in the inclusionary housing fund as described in Section 21.67.110.

B. Land Dedication. An applicant may dedicate land to the City or a local nonprofit housing developer, at no cost to the City or such housing developer, in place of actual construction of inclusionary units upon approval of the City Council. The applicant must comply with the following provisions and provide evidence of such compliance when the proposed land dedication is submitted to the City:

1. The applicant must exclusively control the land to be dedicated.

2. The land to be dedicated must be free of any liens, easements or other encumbrances adversely impacting value, and must be fully served by necessary utility infrastructure.

3. The land to be dedicated cannot contain any hazardous materials, and the applicant must disclose any previous hazardous materials located thereon and provide evidence that remediation was performed in compliance with applicable law.

4. The land to be dedicated cannot have been improved with residential structures for a period of at least five (5) years prior to application submission.

5. All property taxes and other assessments must be fully paid at the time of application submission and at the time of actual dedication and/or conveyance.

6. The land to be dedicated must be located within one (1) mile of the residential development that is subject to the requirements of this Chapter, unless the land to be dedicated is in a High Resource Area.

7. The existing General Plan and zoning standards applicable to the land to be dedicated must allow for the requisite number of inclusionary units to be developed, and such land must otherwise be suitable in terms of size, configuration and physical characteristics to allow for such inclusionary unit development.

8. The development of the requisite number of inclusionary units must be feasible without the need for City, Housing Authority, or Long Beach Community Investment Company assistance funds.

9. Any other requirements of the inclusionary housing guidelines. For developments within the coastal zone, those requirements must be consistent with the policies of the LCP, including this Chapter. In any case of conflict between the Inclusionary Housing Guidelines and the policies of the LCP, the policies of the LCP shall take precedence over the guidelines.

C. Other alternative compliance methods. A developer may propose an alternative compliance method to provide inclusionary units through other means consistent with any adopted inclusionary housing guidelines and Housing Element policies and goals to affirmatively further fair housing in the City. For developments within the coastal zone, those alternative compliance methods must be consistent with the policies of the LCP, including this Chapter. In any case of conflict between the Inclusionary Housing Guidelines and the policies of the LCP, the policies of the LCP shall take precedence over the guidelines. City staff shall evaluate a developer's proposal and issue recommendations to the City Council regarding the proposal's compliance with the City's Housing Element policies, fair housing goals, and Regional Housing Needs Assessment. The City Council will consider such recommendations and may approve or conditionally approve such an alternative only if the City Council determines, based on substantial evidence, that such alternative compliance will provide as many or more inclusionary units at the same or lower income levels or will otherwise provide greater public benefit than would provision of the inclusionary units on-site.

The compliance options in Paragraphs A and B of this Section do not qualify the residential development for a density bonus or other regulatory incentives unless the dedication of land conforms to the provisions of Government Code Section 65915(g).

(ORD-26-0014 §§ 5, 6, 2026; ORD-25-0004 § 6, 2025; ORD-22-0004 § 1, 2022; ORD-21-0006 § 1, 2021)

21.67.090 Application and Review Procedures.

A. Inclusionary housing plan.

1. An application for the first approval of a residential development shall include an inclusionary housing plan describing how the development will comply with the provisions of this Chapter. As

an alternative to compliance with the basic provisions included in Section 21.67.050, an applicant may propose one of the alternatives listed in Section 21.67.080 as part of the inclusionary housing plan.

2. Any proposed density bonus, waivers, modification of parking standards, or other regulatory incentives shall be included in the inclusionary housing plan.

3. Any adopted inclusionary housing guidelines may specify the contents of the inclusionary housing plan. No application for a first approval for a residential development may be deemed complete unless an inclusionary housing plan is submitted in conformance with this Chapter.

4. The inclusionary housing plan shall be processed concurrently with all other permits required for the residential development. Before the approval body may approve the inclusionary housing plan, the approval body must affirmatively find that the inclusionary housing plan conforms to the requirements set forth in this Chapter. A condition shall be attached to the first approval of any residential development to require recordation of the inclusionary housing regulatory agreement described in Paragraph B of this Section prior to the approval of any final or parcel map or building permit for the residential development.

5. The approved inclusionary housing plan for a residential development, or for a building phase in a residential development, where phasing has been approved as part of planning entitlement approvals, may be amended prior to issuance of any building permit for the residential development or building phase, if applicable. A request for a minor modification of an approved inclusionary housing plan may be granted by the City Manager or their designee if the modification is substantially in compliance with the original inclusionary housing plan and conditions of approval. Other modifications to the inclusionary housing plan shall be processed in the same manner as the original plan.

6. Fair Housing and Marketing Plan. The inclusionary housing plan shall describe the applicant's marketing plan, which shall comply with all applicable fair housing laws and shall not discriminate in the sale or rental of inclusionary units on the basis of race, national origin, color, religion, gender, disability, familial status, age, income source, or marital status.

B. Inclusionary housing regulatory agreement. The applicant shall enter into an inclusionary housing regulatory agreement with the City, in a form approved by the City Attorney, to be executed by the City Manager or their designee, to ensure that all the requirements of this Chapter are satisfied. The inclusionary housing regulatory agreement shall be recorded against the residential development (and contiguous property under common ownership and control in accordance with Section 21.67.050.C) no later than thirty (30) days after such residential development has submitted for plan check.

C. The City Council, by resolution, may establish fees for the ongoing administration and monitoring of the inclusionary units, which fees may be updated periodically, as required.

D. The City Council hereby authorizes the Planning Commission to adopt inclusionary housing guidelines to implement this Chapter.

(ORD-25-0004 § 7, 2025; ORD-22-0004 § 1, 2022; ORD-21-0006 § 1, 2021)

21.67.100 Continued Affordability.

A. All inclusionary units shall remain affordable to the targeted income group for the longer of: (i) a period of fifty-five (55) years from the date of issuance of a tentative or final Certificate of Occupancy for such inclusionary units, or (ii) for so long as the subject property which includes such inclusionary units is developed for a residential use.

B. Any adopted inclusionary housing guidelines may include standard documents such as a resale restriction or regulatory agreement, for execution by the City Manager or their designee, in a form approved by the City Attorney, to secure the continued affordability of the inclusionary units approved for each residential development, provide ongoing maintenance obligations, define rent and sale price increase procedures, and provide formulas for how resale prices for ownership inclusionary units are calculated. Such document(s) shall be recorded against the residential development or the inclusionary units, as applicable.

C. Any eligible household that occupies an inclusionary unit must occupy that unit as its principal residence, unless otherwise approved in writing for rental to a third-party eligible household for a limited period of time due to household hardship, as may be specified in any adopted inclusionary housing guidelines.

D. No household may begin occupancy of an inclusionary unit until the household has been determined to be eligible to occupy that unit by the City Manager or their designee. Any adopted inclusionary housing guidelines may establish standards for determining household income, affordable housing cost, provisions for continued monitoring of tenant eligibility, and other eligibility criteria.

E. Officials, employees, or consultants of the City, members of City boards and commissions, and the applicant and the applicant's officials shall comply with all applicable laws, regulations, and policies relating to conflicts of interest as to their eligibility to develop, construct, sell, rent, lease, occupy, or purchase an inclusionary unit. Any adopted inclusionary housing guidelines shall include conflict of interest provisions relating to the administration of this Chapter and the eligibility of persons to occupy inclusionary units.

(ORD-22-0004 § 1, 2022; ORD-21-0006 § 1, 2021)

21.67.110 Housing Trust Fund.

A. All in-lieu fees or other funds collected under this Chapter shall be deposited into the City's Housing Trust Fund and shall be maintained and accounted for separately in an inclusionary housing program subaccount.

B. Moneys deposited in the Housing Trust Fund pursuant to this Chapter may be used by City to pay for direct costs associated with the administration and enforcement of the program established by this Chapter.

C. After payment of expenses, if any, described in Paragraph B of this Section, all of the remaining moneys deposited in the Housing Trust Fund pursuant to this Chapter shall be expended to provide affordable housing assistance.

(ORD-25-0004 § 8, 2025; ORD-22-0004 § 1, 2022; ORD-21-0006 § 1, 2021)

21.67.120 Waiver.

A. Notwithstanding any other provision of this Chapter, the requirements of this Chapter may be waived, adjusted, or reduced by the City Council based upon a showing that applying the requirements of this Chapter would result in an unconstitutional taking of property or would result in any other unconstitutional result.

B. Any request for a waiver, adjustment, or reduction under this Section shall be submitted to the City concurrently with the inclusionary housing plan. The request for a waiver, adjustment, or reduction shall set forth in detail the factual and legal basis for the claim.

C. The request for a waiver, adjustment, or reduction shall be reviewed and considered in the same manner and at the same time as the inclusionary housing plan.

D. In making a determination on an application for waiver, adjustment, or reduction, the applicant shall bear the burden of presenting substantial evidence to support the claim. The City may assume each of the following when applicable:

1. That the applicant will provide the most economical inclusionary units feasible, while still meeting the requirements of this Chapter and any adopted inclusionary housing guidelines; and

2. That the applicant will benefit from the incentives for the residential development as described in this Chapter and elsewhere in the Long Beach Municipal Code.

E. The waiver, adjustment or reduction may be approved only to the extent necessary to avoid an unconstitutional result, after adoption of written findings, based on substantial evidence, supporting the determinations required by this Section. If a reduction, adjustment, or waiver is granted, any change in the residential development shall invalidate the reduction, adjustment, or waiver, and a new application shall be required for a reduction, adjustment, or waiver pursuant to this Section.

(ORD-22-0004 § 1, 2022; ORD-21-0006 § 1, 2021)

21.67.130 Enforcement.

A. The City Manager and City Attorney shall be authorized to enforce the provisions of this Chapter and all inclusionary housing regulatory agreements and other covenants or restrictions placed on inclusionary units, by: (i) suspension or revocation of any building permit or approval upon finding of a violation of any provision of this Chapter or such agreements or restrictions, and/or (ii) by civil action and any other proceeding or method permitted by law.

B. Failure of any official or agency to fulfill the requirements of this Chapter shall not excuse any applicant or owner from the requirements of this Chapter. No permit, license, map, or other approval or entitlement for a residential development shall be issued, including without limitation a final inspection or certificate of occupancy, until all applicable requirements of this Chapter have been satisfied.

C. The remedies provided for herein shall be cumulative and not exclusive and shall not preclude the City from any other remedy or relief to which it otherwise would be entitled under law or equity.

(ORD-22-0004 § 1, 2022; ORD-21-0006 § 1, 2021)

CHAPTER 21.68 ENHANCED DENSITY BONUS

21.68.010 Purpose.

This Chapter establishes an enhanced density bonus (EDB) incentive program to facilitate the development of residential mixed-income, multi-family, and special needs housing development projects. This Chapter is intended to further the City's goals in meeting the need for additional housing per the Regional Housing Needs Allocation (RHNA); to support inclusionary housing; and to implement the policies of the Housing Element of the General Plan.

(ORD-26-0017 § 5, 2026; ORD-21-0034 § 1, 2021)

21.68.020 Reserved.

Editor's note—ORD-26-0017 § 30, adopted June 16, 2026, repealed § 21.68.020, entitled "Definitions," which derived from: ORD-23-0036 § 1, 2023; and ORD-21-0034 § 1, 2021.

21.68.030 Eligible parcels and qualifying housing development projects.

A. Eligible sites. A lot or parcel may be eligible for an Enhanced Density Bonus where residential use(s) are permitted either by the zoning district or, if the zoning is not consistent with the Land Use Element of the General Plan, by the Place-Type (land use district of the Land Use Element) designation; and where five (5) or more housing units could be built based on the allowable density applicable to the site.

B. Qualifying projects. In order to qualify for a density bonus and/or other development allowances permitted by this Chapter, a housing development project (which includes a shared housing building development or mixed-use development) shall be located on an eligible site and shall provide one or more of the following:

1. A community benefit described in the Special Bonuses of Section 21.68.080, or

2. On-site deed-restricted affordable dwelling units for any of the following household income levels (defined in Section 21.15.1390):

   a. Extremely low income,

   b. Very low income,

c. Low income, or

d. Moderate income.

(ORD-26-0017 § 6, 2026; ORD-21-0034 § 1, 2021)

21.68.040 Procedures.

A. Residential density (base density). An applicant for a housing development project pursuant to this Chapter shall first demonstrate the base density that would be permitted for the project site, as defined in Section 21.15.765. If density is not specified by the applicable zoning district, the applicant shall submit an analysis showing the project density of units that could be developed on the site based on the applicable objective development standards, the proposed unit sizes, and other project details relevant to determining project density.

B. Alternate process to State law. This Chapter provides an alternative process to the State density bonus process and incentives for multi-family housing development projects that include affordable units. Use of this Chapter is voluntary and can be utilized by qualifying projects in lieu of, but not in addition to, the State density bonus laws (Cal. Gov't Code §65915) or the State transit-oriented development laws (Cal. Gov't Code §65912.155 et seq). A housing development project shall not utilize the provisions and procedures of this Chapter in addition to State density bonus law or State transit-oriented development law to increase project density or otherwise qualify for project incentives/concessions or development standards waivers.

C. Coastal zone provisions. The provisions of this Chapter shall not in any way alter or lessen the effect or application of the Coastal Act and the Local Coastal Program (LCP). For housing development projects within the coastal zone, projects approved under this Chapter shall be consistent with the policies of the LCP. In case of conflict between the application of the requirements of this Chapter and the requirements of the LCP, the requirements of the LCP shall take precedence.

D. Inclusionary housing.

1. Any project of ten (10) dwelling units or more that utilizes this Chapter also shall be subject to the inclusionary housing requirements of Chapter 21.67, as applicable, and shall comply with the application and review procedures of Section 21.67.090, in addition to the other requirements of that Chapter.

2. Inclusionary housing projects that provide on-site affordable housing units, as required by Chapter 21.67, shall qualify for the density bonus provisions of Table 68-1.

3. Inclusionary housing projects subject to Chapter 21.67 shall not satisfy the affordability requirements of the density bonus provisions of this Chapter through payment of in-lieu fees or land dedication.

4. The utilization of a density bonus provided by this Chapter shall not in any way lessen or absolve a housing development project of compliance with the inclusionary housing requirements of Chapter 21.67.

5. Calculations of the number of inclusionary housing units required by Chapter 21.67 shall exclude any density bonus units provided by this Chapter.

6. The presence of density bonus units provided by this Chapter shall not require a housing development project to comply with Chapter 21.67 if the project is otherwise exempt from Chapter 21.67.

7. All affordable density bonus units approved pursuant to the provisions of this Chapter shall be deed-restricted to remain affordable at the specified household income level(s) for the longer of:

   a. A period of fifty-five (55) years from the date of issuance of a Temporary or final Certificate of Occupancy (whichever comes first) for said units, or

   b. For so long as the subject site, which includes said density bonus units, is developed and used as a residential use of land.

E. Replacement and relocation requirements.

1. Any project utilizing this Chapter shall be subject to the unit replacement and relocation provisions established by the Zoning Regulations and state law, as applicable (See Chapter 21.11).

2. Any dwelling unit required to be replaced by this Subsection shall not count toward the number of affordable units required by this Chapter and shall be provided in the project regardless of any density bonus, Special Bonus, development standards waivers, or incentives/concessions granted to the project.

3. Existing units shall be subject to replacement requirements if either the income of the existing household(s) qualifies at the low, very low, or extremely low levels, or if the rent, regardless of household income, is affordable to low, very low or extremely low-income households. The number and affordability level(s) of the replacement units to be provided shall be determined by both the income level of the household(s) and the rent level(s) of the units regardless of household income.

4. An applicant for a density bonus housing development project pursuant to this Chapter shall provide evidence to the satisfaction of the Director of Community Development to establish the existing rent and affordability level(s) of each dwelling unit that will, or may, be removed as a result of a proposed housing development project. Such evidence shall include an accounting of all rents charged for each unit over the preceding five (5) years. Rent levels will be compared to Average Median Income (AMI) to establish the units' affordability levels. The requirement to provide an accounting of rents for the preceding five (5) years shall apply retroactively to any units that may have been demolished or vacated within the five (5) year period preceding the application. No demolition or construction permits shall be issued for a multi-family development project consisting of five (5) or more residential dwelling units until the required documentation is provided and approved; and an application is submitted to the Director that incorporates both replacement and density bonus units for the proposed project.

F. Calculating density bonus units.

1. Number. The number of density bonus units shall be calculated as a percentage increase in the number of units over the base density permitted on the site.

2. Rounding and calculations. Each component of density calculation including residential density, bonus density, and/or incentives resulting in fractional units, shall be separately rounded up to the next whole number.

G. Affordable unit type, size, mix, and location.

1. Affordable units shall be evenly distributed throughout the project building(s) and shall have equal access to all on-site facilities and amenities.

2. The unit mix of affordable units shall generally conform to the unit mix of the overall project including unit type, unit sizes, and number of bedrooms, and shall be comparable to the highest household income level units in the project in terms of design, in-unit amenities, and exterior and interior finishes.

H. Timing and construction of affordable units.

1. All affordable units shall be made available for occupancy prior to, or concurrently with, the market-rate units of the project.

2. The affordable units may be constructed in phases if the market-rate units are constructed in phases, provided that the percentage of affordable units developed in each phase shall be equivalent to or greater than the total percentage of affordable units required for the project, until all the required affordable units have been constructed.

(ORD-26-0017 § 7, 2026; ORD-23-0036 § 2, 2023; ORD-21-0034 § 1, 2021)

21.68.050 Density Bonus and concessions for affordable units.

A. Table 68-1 establishes an affordable component and the corresponding density bonus and concessions granted based on the affordable component. The affordable component is the percentage of affordable units in a qualifying project, before density bonus.

B. A project may include an affordable component in excess of the levels in Table 68-1; however, density bonuses granted for an affordable component shall not exceed one hundred percent (100%) and the number of concessions granted shall not exceed six (6).

C. If a project proposes two or more types of affordable components from Table 68-1, (e.g., very-low and moderate income), density bonus and concessions are granted cumulatively. However, density bonuses granted for affordable units shall not exceed one hundred percent (100%) and the number of concessions granted shall not exceed six (6).

D. Density bonuses and concessions granted for affordable units may be granted independently or in addition to the density bonus and concessions granted through the Special Bonuses established in Section 21.68.080.

E. A project that receives a density bonus granted for an affordable component plus a Special Bonus per Section 21.68.080 may exceed a density bonus level of one hundred percent (100%).

Table 68-1 Affordable Housing Set-Aside, Density Bonus, and Concessions

Affordable Component				Benefits to Project(a)	
Extremely Low-Income	Very Low-Income	Low-Income	Moderate Income(b)	Density Bonus	Incentive/ Concession
-	-	1%	5%	5%	1
-	-	2%	6%	10%	1
-	1%	3%	7%	15%	1
-	2%	4%	8%	20%	1
1%	3%	5%	9%	25%	2
2%	4%	6%	10%	30%	2
3%	5%	7%	11%	35%	2
4%	6%	8%	12%	40%	2
5%	7%	9%	13%	45%	3
6%	8%	10%	14%	50%	3
7%	9%	11%	15%	55%	3
8%	10%	12%	16%	60%	3
9%	11%	13%	17%	65%	4
10%	12%	14%	18%	70%	4
11%	13%	15%	19%	75%	4
12%	14%	16%	20%	80%	4
13%	15%	17%	21%	85%	5
14%	16%	18%	22%	90%	5
15%	17%	19%	23%	95%	5
16%	18%	20%	24%	100%	6

Notes:

a) See also Section 21.68.070 - Waivers.

b) For sale projects that comply with the phased-in affordability level requirements of Table 21.67-2 of Chapter 21.67 (Inclusionary Housing) at the 10% or higher level shall be eligible to receive incentives/concessions and a density bonus as provided in the Moderate income column of Table 68-1.

(ORD-26-0017 § 8, 2026; ORD-23-0036 § 3, 2023; ORD-21-0034 § 1, 2021)

21.68.060 Eligible concessions/incentives.

A. An eligible project shall be granted concessions (defined Section 21.15.1448) except in the following circumstances:

1. The concession would not result in identifiable and actual cost reductions to provide for affordable housing costs for the income levels targeted,

2. The concession would be contrary to state of federal law,

3. The concession would have a specific, adverse impact for which there is no feasible method to satisfactorily mitigate or avoid the specific, adverse impact, upon either of the following:

   a. Upon health or safety, or

   b. Upon a property listed in the California Register of Historical Resources, or a City-designated historic landmark.

B. Concessions may be granted to a project through either or both of the following mechanisms:

1. The affordability component per Table 68-1, and

2. Special Bonuses as described in Section 21.68.080.

C. The total number of concessions granted to a project shall not exceed six (6).

D. No concession shall be used to modify or reduce the inclusionary housing requirements of Chapter 21.67, or to grant a density increase beyond the density bonus already granted per Table 68-1 or a Special Bonus granted per Section 21.68.080.

E. Provisions for height concessions.

1. Each additional story granted through a concession shall not exceed twelve (12') of building height.

2. The first additional story shall require one (1) concession, and each additional story shall require two (2) concessions.

3. A project is limited to a maximum combination of height concessions totaling three (3) stories and thirty-six feet (36') of building height.

4. For a project that does not consist of 100% affordable units (exclusive of any manager's units) any request for an incentive/concession for a height increase exceeding one (1) story or 12 feet shall require review and approval of the Planning Commission, which shall make a determination that the incentive/concession is physically necessary to the provision of the affordable units in order for the concession to be approved.

5. For a project that consists of 100% affordable units (exclusive of any manager's units), any request for an incentive/concession for a height increase exceeding one story or 12 feet shall require the applicant to complete the following actions after project approval, but prior to the issuance of any construction permits:

   a. Mail a notice to each property owner and tenant within a 300-foot radius of the project site. The radius shall be measured from the exterior property lines of the project site. The notice shall include a detailed description of the project, a tentative construction timeline, and a telephone number or email address that a recipient may contact for more information. The notice also shall contain the date, time, and location of the information session required below;

   b. Conduct an in-person information session about the project, open to all members of the public, with at least two weeks of advance notice given; and

   c. The applicant shall provide copies of mailed notices, meeting flyers, meeting summaries or notes, or other relevant documentation to the Director of Community Development as evidence that this requirement has been fulfilled.

6. Any concession(s) for a height increase exceeding one story or 12 feet for a site abutting, adjoining, or adjacent to (across an alley) from an R-1 or R-2 zoning district shall provide a ten-foot (10') building step-back above the second story portion of the building facing the R-1 or R-2 zoning district.

7. The procedures of this Subsection shall not be modified or reduced through the use of a concession or other method.

(ORD-26-0017 § 9, 2026; ORD-23-0036 § 4, 2023; ORD-21-0034 § 1, 2021)

21.68.070 Waivers.

A. If a proposed project conforms to the density limits allowed through a combination of base density and density bonus, but another development standard of the Zoning Regulations would have the effect of physically precluding the number of units proposed, the project applicant may request a waiver of the specific development standard. A requested waiver shall be denied by the approving authority only if one or more of the following circumstances applies:

1. The waiver would be contrary to state or federal law,

2. The waiver would have a specific, adverse impact for which there is no feasible method to satisfactorily mitigate or avoid the specific, adverse impact upon either of the following:

   a. Upon health or safety, or

   b. Upon a property listed in the California Register of Historical Resources, or a City-designated historic landmark.

B. A waiver shall be granted from the Zoning Regulations only.

C. The proposed project shall include the density bonus units for which the waiver is requested.

D. The project applicant shall identify any requested waivers in the project application, and shall make a factual showing demonstrating how application of the development standards would preclude construction of the number of units proposed.

(ORD-26-0017 § 10, 2026; ORD-23-0036 § 5, 2023; ORD-21-0034 § 1, 2021)

Editor's note—ORD-26-0017 § 10, amended the title of § 21.68.070 to read as herein set out. The former § 21.68.070 was entitled "Types of eligible concessions/incentives."

21.68.080 Special bonuses.

A. Special bonus provisions.

1. A Special Bonus may be granted for a qualifying project that provides one or more of the community benefits described in Subsection B.

2. A Special Bonus is granted in the form of density bonuses and concessions.

3. Density bonuses and concessions granted as Special Bonuses are cumulative and may be granted independently or in addition to the density bonus and concessions allowed by Table 68-1.

4. Multiple Special Bonuses may be applied to a project. Each Special Bonus may provide up to a maximum of twenty percent (20%) density bonus plus one concession.

5. Utilization of Special Bonuses may exceed a cumulative total of 100% density bonus (inclusive of all density bonus provisions of this Chapter).

6. Utilization of Special Bonuses shall not exceed a cumulative total of one hundred twenty percent (120%) density bonus (inclusive of all density bonus provisions of this Chapter).

7. Each Special Bonus shall be granted one concession, not to exceed a cumulative total of six (6) concessions (inclusive of all concessions provided by this Chapter).

B. The following qualifying projects are eligible for Special Bonuses as described in Subsection A:

1. A project that provides large dwelling units as follows:

   a. More than twenty-five percent (25%) of a project's total units are two-bedroom units of 970 square feet or more, or

   b. More than five percent (5%) of a project's total units are three-bedroom units of 1,140 square feet or more, and

   c. The number of bedrooms and the size of the affordable units provided for the Special Bonus shall be proportional to or greater than the average number of bedrooms and size of market-rate units for the project.

2. A project that provides an on-site daycare facility, subject to all applicable permitting and licensing requirements at the state and local levels. The daycare facility shall be exempt from floor area ratio (FAR) limits and parking requirement,

3. A project within 1,000 feet of a City park (subject to the following provisions):

   a. For purposes of this Section, distance shall be measured in a straight line from the nearest edge of the project lot or parcel to the nearest edge of the park lot or parcel, and

   b. Dedicated City parks are listed in Chapter 21.35. Any park listed or dedicated in the Open Space Element of the General Plan, which is not listed in Chapter 21.35, also is subject to this regulation.

4. A project that proposes, through development of the project, to abate a nuisance as defined in Chapter 9.37 of the Long Beach Municipal Code,

5. A project that complies with the labor standards of Cal. Gov't Code §65912.130, and

6. A project that is a senior citizen housing development or special group residence,

7. A project that includes any of the following active ground floor uses:

   a. Café or restaurant without a drive-through, with or without outdoor dining,

   b. Commercial - basic retail,

   c. Commercial - basic personal services,

   d. Physician's office or medical clinic (including, without limitation, urgent care),

   e. Fitness center/health club, or

   f. Hotel.

(ORD-26-0017 § 11, 2026; ORD-21-0034 § 1, 2021)

21.68.090 Parking requirements.

For a project approved pursuant to this Chapter, parking shall be provided as required by Table 68-2, with the following exceptions:

A. Outside of the coastal zone, no parking shall be required for a project that consists of 100% affordable units (excluding any manager's units).

B. In the coastal zone, a project that consists of 100% affordable units (excluding any manager's units) shall be eligible for the reduced parking requirements established in Table 68-3.

Table 68-2 Parking Requirements for EDB Projects

Unit Type or Use	Parking Requirement
0—1 bedroom units	1 space/unit
2—3 bedroom units	1.25 spaces/unit
4 or more bedroom units	2 spaces/unit
Non-residential uses	As required by Chapter 21.41. The first 6,000 sq. ft. of GFA is exempt if not located in the Coastal Zone.

Table 68-3 Parking Requirements for 100% Affordable EDB Projects in the Coastal Zone

Unit Type or Use	Parking Requirement
Residential uses	0.25 spaces/unit
Non-residential uses	As required by Chapter 21.41.

(ORD-26-0017 § 12, 2026; ORD-23-0036 § 6, 2023; ORD-21-0034 § 1, 2021)

21.68.100 Sunset Clause.

The ordinance will sunset, unless otherwise extended by the City Council, when the City meets its affordable component of its Regional Housing Needs Allocation (RHNA) as defined in the Housing Element of the General Plan.

(ORD-26-0017 § 13, 2026; ORD-21-0034 § 1, 2021)

21.68.110 Enforcement.

Any project that includes on-site affordable units shall enter into a housing regulatory agreement with the City, in a form approved by the City Attorney, to be executed by the City Manager or designee, to ensure that all applicable requirements of this Chapter are fulfilled. The housing regulatory agreement shall be recorded against the title of the residential development (and contiguous property under common ownership and control) no later than thirty (30) days after such residential development project is submitted to the Director of Community Development for building permit plan review.

A. The City Manager, City Attorney, and City Prosecutor are authorized to enforce the provisions of this Chapter and all regulatory agreements and other covenants or restrictions placed on affordable units, by: (i) suspension or revocation of any building permit or approval upon finding of a violation of any provision of this Chapter or such agreements or restrictions, and/or (ii) by civil action and any other proceeding or method permitted by law.

B. Failure of any official or agency to fulfill the requirements of this Chapter shall not excuse any applicant or owner from compliance with the requirements of this Chapter. No permit, license, map, or other approval or entitlement for a residential development shall be issued, including, without limitation, a final inspection or certificate of occupancy, until all applicable requirements of this Chapter have been fulfilled.

(ORD-26-0017 § 26, 2026)

CHAPTER 21.69 TEMPORARY SUSPENSION OF CERTAIN PROVISIONS OF TITLE 21 DURING A PROCLAIMED LOCAL EMERGENCY CAUSED BY HOMELESSNESS

21.69.010 Purpose.

In order to protect the public safety, health and welfare within the City of Long Beach, this Chapter provides a temporary suspension of rules related to Title 21 of the Long Beach Municipal Code for the duration of a proclaimed local emergency caused by a dramatic increase in homelessness, a dramatic increase in the number of deaths of persons experiencing homelessness, an incredible and unprecedented strain on the City's ability to provide appropriate shelter and housing and public safety concerns due to violence and severe mental and physical health issues.

(ORD-23-001(Emerg.) § 2, 2023)

21.69.020 Suspensions.

A. Suspend provisions of Title 21 that pertain to construction of emergency shelters, transitional housing, supportive housing, affordable housing, and any other physical improvements to address the City's proclaimed local emergency caused by homelessness, in any location, as reviewed and approved by the Directors of Development Services and Health and Human Services, and subject to any conditions imposed by these departments. All project reviews shall be completed within 60 days from the filing of project application.

B. Suspend provisions of Title 21 that pertain to the construction of social service facilities, social service facilities with food distribution, personal storage facilities and related uses that facilitate

services to address the City's proclaimed local emergency caused by homelessness, in any location, as reviewed and approved by the Directors of Development Services and Health and Human Services, and subject to any conditions imposed by these departments. All project reviews shall be completed within 60 days from the filing of project application.

C. Suspend provisions of Title 21 that pertain to the construction and operation of safe parking sites, Recreational Vehicle (RV) parking, and other temporary or semi-temporary uses of space for services to address the City's proclaimed local emergency caused by homelessness, in any location, as reviewed and approved by the Directors of Development Services and Health and Human Services, and subject to any conditions imposed by these departments. All project reviews shall be completed within 60 days from the filing of the project application.

D. Suspend provisions of Title 21 that pertain to the construction and operation of mental health care facilities, hospitals, clinics, offices and otherwise, in any location, as reviewed and approved by the Directors of Development Services and Health and Human Services, and subject to any conditions imposed by these departments. All project reviews shall occur during a 60-day period from filing.

E. Suspend provisions of Title 21 that pertain to the construction and operation of substance abuse facilities, hospitals, clinics, offices and otherwise, in any location, as reviewed and approved by the Directors of Development Services and Health and Human Services, and subject to any conditions imposed by these departments. All project reviews shall be completed within 60 days from the filing of project application.

F. Suspend provisions of Title 21 that pertain to the construction of fencing, including fencing that deviates from the height and material requirements of the municipal code, to secure buildings, lots and facilities to prevent trespassing or encampment, in any location, as reviewed and approved by the Directors of Development Services and Health and Human Services, and subject to any conditions imposed by these departments.

G. Suspend rules within Title 21 that pertain to Accessory Dwelling Units in the limited circumstances of an existing unpermitted unit occupied by tenant(s). Upon receipt of an application, and subject to discretion of the Director of Development Services, allow for the legalization of any existing structure occupied by tenant(s), as an Accessory Dwelling Unit, despite conflicting provisions of other local laws.

(ORD-23-001(Emerg.) § 2, 2023)

21.69.030 Improvements.

Improvements approved under a local emergency proclamation and during the local emergency period are intended to be permanent and shall be permanent and will not require new approvals at the expiration of the emergency. The City intends all improvements approved under this Title during the local emergency to be constructed immediately. Notwithstanding the approvals made during the local emergency, Section 21.21.406 titled Expiration shall remain in full force and effect.

(ORD-23-001(Emerg.) § 2, 2023)

21.69.040 Expiration.

This Chapter 21.69 shall expire One Hundred Eighty (180) days after its effective date, unless further extended by the City Council in its discretion by an amendment to this Chapter.

(ORD-23-001(Emerg.) § 2, 2023)

TITLE 22

TRANSITIONAL ZONING CODE: ZONE IN SPECIFIED AREAS*

Chapter 22.10 General Provisions

22.10.010 Title.
22.10.020 Purpose and Intent.

Chapter 22.11 Definitions

22.11.010 Purpose.

Chapter 22.12 Districts Established

22.12.010 Districts designated.
22.12.020 Regulations for all districts.
22.12.030 Use District Map Adopted.
22.12.040 Zoning Districts.

Chapter 22.13 Specific Procedures

22.13.100 Site Plan Review.
22.13.104 Adjustment Process.

Chapter 22.15 Uses

22.15.010 General Provisions.
22.15.020 Land Use Operations.
22.15.030 Permit Requirements—Permitted Uses.

Chapter 22.20 Specific Use Standards

22.20.010 Alcoholic Beverage Sales.
22.20.020 Car Wash.
22.20.030 Entertainment Uses, Accessory to a Restaurant or Food Service Use.
22.20.040 Fleet Services and Towing.
22.20.045 Food and Drink Manufacturing.
22.20.050 Manufacture of Products Sold On-Site.
22.20.060 Motorcycle/Scooter/Jet Ski Sales.
22.20.070 Green Materials or Mixed Organic Composting Facility.
22.20.080 Office, Non-Medical in Neo-Industrial Zones.

***Editor's note—**Ord. No. 24-0015, § 1(Exh. A), adopted October 1, 2024, repealed the former Title 22, §§ 22.10.010, 22.10.020, 22.15.010—22.15.030, 22.20.010—22.20.040, 22.25.010—22.25.060, 22.30.010—22.30.140, 22.35.010—22.35.030 and enacted a new Title 22 as set out herein. The former Title 22 pertained to Transitional Zoning Code. See the Code Comparative Table and Disposition List for complete derivation.

22.20.090 Outdoor Dining.
22.20.100 Pop-Up Shop/Itinerant Vendor.
22.20.110 Vending Carts.

Chapter 22.25 Special Use Incentives (A-Series Zones)

22.25.010 Education and Institutional Uses.
22.25.020 Grocery and Food Markets.
22.25.040 Community Benefits.
22.25.050 Climate Mitigation and Adaptation Incentives.
22.25.060 Permitted Uses in A-Series Zones.

Chapter 22.30 General Provisions - Development Standards (RMU, MU, C Zones)

22.30.010 Applicability and General Development Standards.
22.30.020 Frontage Requirements.
22.30.030 Development Sites.
22.30.040 Screening Required.
22.30.050 General Building Character.
22.30.060 Active Ground Floor Urban Design Standards and Active Use Requirements.
22.30.070 Ground Floor Urban Design Standards for Retail, Activating, and Pedestrian-Oriented Uses.
22.30.080 Additional Standards and Active Use Requirements for Main Street ("-M"-suffix) zoning districts.
22.30.090 Parking and Vehicular Access Standards.
22.30.100 Joint Use and Parking Agreements.
22.30.110 Lighting Design for Safety.
22.30.120 Open Space Standards.
22.30.130 Fence Regulations.
22.30.140 Frontage Locations.

Chapter 22.35 Temporary Suspension of Certain Provisions of Title 22 During a Proclaimed Local Emergency Caused by Homelessness

22.35.010 Purpose.
22.35.020 Suspensions.
22.35.030 Expiration.

Chapter 22.40 General Provisions - Development Standards (MFR Zones)

22.40.010 Tables 40-1 and 40-2 of this chapter establish development standards.

22.40.020 Yard Requirements.
22.40.030 Fence Regulations.
22.40.050 Accessory Buildings.
22.40.060 Parking and Vehicular Access Standards.

Chapter 22.41. General Provisions - Development Standards (NI Zones)

22.41.010 Tables 41-1 through 41-5 of this Chapter establish development standards.
22.41.020 Site Design & Layout.
22.41.030 Parking and Vehicular Access Standards.
22.41.040 Landscaping Requirements.
22.41.050 Operational Performance Standards.
22.41.060 Truck Trip Limitations
22.41.070 Development and Healthy Use Incentives.

CHAPTER 22.10 GENERAL PROVISIONS

22.10.010 Title.

This Title is being established in order to facilitate a substantial update to the City's Zoning Regulations. The intention is to fully transition from Title 21 (Zoning) to Title 22 (Zoning) for areas outside of the Coastal Zone. During the transition period, all regulations contained within Title 22 apply to zones established in Title 22. In the case of a regulation not specified in Title 22, the regulations contained in Title 21, including those set forth in Section 21.10.080, "Penalty for violation," shall apply. If uncertainty arises concerning the content or application of Title 22, the Zoning Administrator is authorized to determine all pertinent facts, interpret the Title 22 regulations, and, where appropriate, determine which provisions of either Title 21 or Title 22 are applicable. The Classification of Use procedure, which is set forth in Chapter 21.25 of Title 21, shall be used to resolve discrepancies.

(ORD-24-0015 § 1(Exh. A), 2024)

22.10.020 Purpose and Intent.

The following zones are established to support a healthy, active area with a variety of uses that support a full-service community along corridors and at activity nodes.

(ORD-24-0015 § 1(Exh. A), 2024)

CHAPTER 22.11 DEFINITIONS

22.11.010 Purpose.

The purpose of this Chapter is to establish definitions for words, phrases and terms used in this Title, and unless the context clearly requires a different meaning, the following words, phrases and terms shall be defined as set forth in this Chapter. During the transition period, all regulations contained within Title 22 apply to zones established in Title 22. In the case of a definition not specified in Title 22, the regulations contained in Title 21 shall apply.

1. Anaerobic Digestion. A facility that uses the controlled biological decomposition of organic material in the absence of oxygen or in an oxygen-starved environment to produce biogas and a residual digestate considered to be a composting operation.

2. Composting Facility. A facility that is operated for the purpose of producing compost and includes, but is not limited to:

    a. Green material composting facilities that have greater than 1,000 cubic yards of feedstock and active compost at any one time;

    b. Animal material composting facilities;

    c. Sewage sludge composting facilities; or

    d. Mixed solid waste composting facilities.

3. Composting Operation. An operation that is operated for the purpose of producing compost, Division 30, Part 1, Chapter 2, Section 40116 of the Public Resources Code. A Composting operation is a solid waste handling operation that does not constitute a composting facility that would require a solid waste facilities permit. Composting operations include:

   a. Windrow composting;

   b. Aerated or non-aerated static pile composting; and

   c. Enclosed or within-vessel composting.

4. Food and Drink Manufacturing. Any facility in which processed livestock and agricultural products are transformed into food or drink products for eventual consumption. Examples include, but are not limited to, animal food manufacturing; beverage manufacturing; dairy product manufacturing, ice manufacturing; fruit and vegetable preserving, grain and oilseed milling; specialty food manufacturing, seafood product preparation and packaging, and sugar and confectionery product manufacturing. This excludes breweries, distilleries, and wineries which are included in the Alcoholic Beverage Manufacturing use category.

5. Heavy Manufacturing. An establishment engaged in manufacturing, assembly, fabrication, packaging, or other industrial processing of products primarily from extracted or raw materials or the bulk storage and handling of such products and materials, or an industrial establishment having the potential to produce noise, dust, glare, odors, smoke or vibration beyond its property line. This term includes, but is not limited to: (a) processing and packaging of alcoholic beverages; (b) chemical manufacturing; (c) stonework or concrete product manufacturing; (d) fabrication of metal products; (e) manufacturing of agricultural, construction, or mining machinery; (f) motor vehicle manufacturing; (g) lumber milling; (h) ship or boat construction; (i) permanent concrete/batch plant. Manufacturing uses that do not have the potential to produce these impacts are considered Light Manufacturing.

6. Mixed Organics Composting Facilities. Mixed organics composting facilities are centers that produce a humus-like material under a process of managed biological decomposition from green materials, leaves, tree trimmings, untreated wood, shrubbery cuttings, kelp, other plant material, manure, or urea that has been source-separated from the municipal solid waste stream.

7. Green Materials or Mixed Organic Composting Facility. Any facility in which processes source-separated organic materials to a stabilized state through controlled biological decomposition where the resultant material is beneficial to plant growth or soil structure when used as a soil amendment. Materials may initially be chipped, shredded, and/or screened on site prior to being composted. Composting may be conducted in an in-vessel system or in the open.

8. Artisan Manufacturing, production and industrial service. Artisan manufacturing includes products where the direct manual contribution of the artisan or worker remains the most substantial component of the finished product.

9. Light Manufacturing. Light manufacturing includes the fabrication, manufacturing, assembly or processing of materials that are in already processed form.

10. Technological Support Services. Includes research, development, and application of digital technologies, such as server hosting, telework centers, and end-of-line product testing.

11. Scooter and Motorcycles. Scooter and motorcycles are those two-wheeled vehicles requiring an M1 or M2 driver's license.

(ORD-26-0018 § 1, 2026; ORD-24-0015 § 1(Exh. A), 2024)

CHAPTER 22.12 DISTRICTS ESTABLISHED

22.12.010 Districts designated.

The incorporated territory of the City of Long Beach is divided into the land use districts indicated in Section 22.12.040 in order to regulate the location of residences, businesses and industries; the location of buildings and structures; the uses of land; the height and bulk of buildings; the area of yards and other open space facilities; and off-street parking facilities.

(ORD-26-0018 § 2, 2026; ORD-24-0015 § 1(Exh. A), 2024)

22.12.020 Regulations for all districts.

These Zoning Regulations divide the City into districts within which the location, height and bulk of buildings or structures and the uses of buildings, structures or land are regulated as specified.

(ORD-24-0015 § 1(Exh. A), 2024)

22.12.030 Use District Map Adopted.

Pursuant to Section 21.30.030 of the Zoning Regulations, the use districts and the boundaries of such districts are shown upon a map consisting of thirty (30) parts, being numbered consecutively from 1 to 30, containing the districts which are established by Chapter 21.30 and this Chapter. The use district map is on file in the office of the Department of Community Development, and said map and all notations, references and other information shown on it, including the index map and the chart showing the symbols and legends employed, are incorporated by reference and shall be deemed as much as part of this Title as if the matters and information set forth by the map were fully described in this Chapter.

(ORD-26-0018 § 3, 2026; ORD-24-0015 § 1(Exh. A), 2024)

22.12.040 Zoning Districts.

The following zoning districts are established to support a healthy, active area with a variety of uses that support a full-service community along corridors and at activity nodes:

A. Mixed use. The following zones are established to foster and support multi-modal mixed-use corridors that provide daily needs, goods, and services in walkable proximity to established residential neighborhoods.

1. Residential Mixed-Use 3 (RMU3 and RMU3-A) zones are residentially focused and permit a range of residential configurations with limited neighborhood-serving non-residential uses. Uses may be configured in a horizontal or vertical mixed-use format.

2. Residential Mixed-Use 4 (RMU4 and RMU4-A) zones are residentially focused and permit higher density residential uses in areas where multi-family housing is currently the dominant use. These zones permit intensification of existing residential areas to increase housing opportunities and introduce neighborhood-serving, non-residential uses in proximity to residents.

3. Mixed-Use 1 (MU-1 and MU-1-A) zones provide for medium-scale, mixed-use development as a transition between residential and mixed-use nodes. These zones permit mixed residential and non-residential uses in a wide variety of configurations.

4. Mixed-Use 2 (MU-2, MU-2-A, and MU-M) zones provide for neighborhood activity centers and "main street" corridors in proximity to bus routes and multi-modal corridors. These zones permit horizontal and vertical mixed-use appropriately scaled for adjacent neighborhoods.

5. Mixed-Use 3 (MU-3 and MU-3-A) zones provide for the highest intensity neighborhood activity centers in proximity to bus routes and multi-modal corridors. These zones permit horizontal and vertical mixed-use scaled for the highest intensity uses that benefit from transit proximity and pedestrian activity.

B. Commercial. The following commercial-only zones are established:

1. Commercial 3 (C3, C3-A, and C-M) zones are non-residential zones that support the transition of larger format industrial/light industrial development to community-level commercial uses. These zones permit non-residential development, scaled to the neighborhood setting, with a range of services and employment uses and intensities.

C. Multi-family residential. The following multi-family zones are established to provide highly desirable housing options for a range of needs and encourage a wide variety of multi-family housing products:

1. Multi-Family Residential - Low (MFR-L) zones allow for a variety of lower-density residential configurations with very limited small neighborhood-serving non-residential uses along residential corridors.

2. Multi-Family Residential - Moderate (MFR-M) zones are residential zones that encourage moderate density infill development and limited small neighborhood-serving non-residential uses along residential corridors.

D. Neo-industrial. The following zones are established to implement the Neo-industrial Place Type in the General Plan. The neo-industrial zones are intended to allow light industrial, small and evolving industries, manufacturing, clean non-nuisance industries, and office uses that support these industries. The following zones are established to foster and support a mix of uses for clean non-nuisance industrial and support businesses:

1. Neo-Industrial 1 (NI-1) zones are intended to allow primarily light industrial uses such as manufacturing, small and incubator businesses, research and development, technology and support uses to promote transition to cleaner industries.

2. Neo-Industrial 2 (NI-2) zones are intended to allow a mix of light industrial and commercial uses to support clean industry and a broad economic base. Light industrial uses would be permitted throughout the zone. Commercial uses are allowed in conjunction with industrial uses. Commercial uses would include office, retail stores, eating and drinking establishments and other accessory uses.

(ORD-26-0018 § 4, 2026; ORD-24-0015 § 1(Exh. A), 2024)

Editor's note—Formerly entitled "Purpose and Intent," which was retitled and amended by § 4 of ORD-26-0018.

CHAPTER 22.13 SPECIFIC PROCEDURES

22.13.100 Site Plan Review.

The site plan review process is established to meet certain community goals which are, among others, to ensure that the highest quality of land planning and design are incorporated into development projects, to ensure that new projects are compatible with existing neighborhoods in terms of scale, style and construction materials, and to ensure the maintenance, restoration, enhancement and protection of the environment.

A. Standard. The following projects shall require site plan review:

1. Residential. The following residential projects require site plan review:

a. Ten (10) or more units as one (1) project. This includes both new construction, as well as additions or adaptive reuse projects. This includes side by side projects by the same applicant where the total of new plus existing units equals ten (10) or more;

b. Any project proposing to utilize the incentive program established for very low and low income households; and

2. Commercial. The following commercial projects require site plan review:

a. New buildings of one thousand (1,000) square feet or more;

b. Additions of one thousand (1,000) square feet or more to an existing commercial building. However, an addition of up to five thousand (5,000) square feet may be permitted without site plan review if the addition is less than twenty-five percent (25%) of the floor area of the existing building and is not visible from a public way;

c. Exterior remodeling of a building where the affected area consists of fifty feet (50') or more of building frontage in the C3 district.

d. Commercial storage uses; and

e. Attached/roof-mounted cellular and personal communication services.

3. Public assembly use. Industrial or public assembly use projects with five thousand (5,000) square feet or more of floor area of new construction.

4. Neo-Industrial Zoning District. Properties within the NI zones shall be subject to Site Plan Review based on the following:

   a. New buildings or additions to existing buildings located on a lot totaling fifteen thousand (15,000) square feet or more.

   b. Parking threshold. Any off-street parking area addition or reconfiguration of more than ten (10) parking spaces or more than 2,500 square feet of surface area.

5. Adaptive Reuse. Projects involving the reuse of existing spaces, structures or buildings as allowed under California Health and Safety Code Section 17958.11 for joint living and work quarters (live-work) or as allowed in Chapter 18.63, and subject to the Special Development Standards in Section 22.15.010.B.

6. Project on City land. All new construction projects with building floor area of five hundred (500) square feet or greater except roadway and utility maintenance or improvements.

7. Sign standards waiver requests. The City recognizes the visual and aesthetic importance that signage has on a development. Signage plays a crucial role in not only identifying the tenants of a particular space, but also in defining and shaping the unique architectural character and identity of a project, and ultimately, the streetscape. To this end, this sign standards waiver section has been introduced. The intent of this provision is to allow a greater amount of creativity and flexibility in the creation, design, and application of signage on developments beyond the established sign standards. The following sign projects shall require site plan review:

   a. Individual sign review requests for waiver of established sign standards;

   b. Sign programs as defined in Subsection 21.44.035.C; and

   c. Changeable copy signs.

B. Conceptual Site Plan Review. The following projects shall also be required to apply for conceptual site plan review prior to filing for site plan review:

1. Residential. Residential projects of fifty (50) or more units;

2. Commercial, Neo-Industrial, industrial or public assembly. Projects of fifty thousand (50,000) square feet or more of new construction;

3. Project on City land. Projects of one thousand (1,000) square feet or more of new construction.

(ORD-24-0015 § 1(Exh. A), 2024)

22.13.104 Adjustment Process.

This Section establishes procedures for conducting review and approval of the Adjustment Process established by Title 22 of the Zoning Code.

A. Purpose. If a project cannot comply with one or more of the development standards of the applicable zoning district, an Adjustment may be granted when an applicant proposes a modification to the project that substantially conforms with the intent of the regulation.

B. Adjustment. Authority of the Zoning Administrator with Appeals to the Planning Commission. If an application fails to conform to one or more of the development standards of the applicable zoning district, the Zoning Administrator shall have initial decision-making authority to grant an Adjustment in accordance with Chapter 21.21, Administrative Procedures, of this Code.

C. Application. An adjustment procedure provided for in this Title 22 may be initiated by application of the owner of any real property in the City directly affected by the procedure, or their authorized agent. Applications and fees for the Adjustment Process shall be submitted in accordance with the provisions set forth in Chapter 21.21.201 of the Zoning Code. The Zoning Administrator may request that the Adjustment Process application be accompanied by a written narrative, plans, and other related materials necessary to show that the proposed development, alteration, or use of the site complies with the intent of the regulation.

D. Filing Fee. A filing fee shall accompany each application as required by Section 21.21.701 of the Zoning Code.

E. Complete Application. No application shall be considered complete until applicable forms are filed, the required fee is paid, and additional information as required by the Director of Community Development, is received. The Director of Community Development shall determine when an application is complete, and the determination of the Director shall be final.

F. Determination. If the Zoning Administrator determines that the requested adjustment conforms with the intent of the regulation, the Director shall issue written notice of the Adjustment Process determination within 30 days of the date of receipt of a completed application. An approved Adjustment may include attachments of other written or graphic information, including but not limited to, statements, numeric data, site plans, floor plans and building elevations and sections, as a record of the proposal's conformity with the intent of this Code.

1. Limitations. An Adjustment shall be limited to deviations from regulations which do not substantially alter the execution or intent of those regulations as applicable to a proposed Project. An Adjustment shall be limited to 20 percent of the established development standard or as specified in Title 22.

2. Conditions for Approval. In approving an Adjustment, the Zoning Administrator may impose those conditions they deem necessary to remedy a disparity of privileges and that are necessary to protect the public health, safety or welfare and assure compliance with the objectives of the General Plan and the purpose and intent of the regulations of the applicable Zoning District.

3. Findings. The determination by the Zoning Administrator shall include written findings in support or denial of the determination. In order to approve a proposed project pursuant to this Section, the Zoning Administrator must find that:

   a. There are special circumstances applicable to the project or project site which make the strict application of the subject development standard(s) impractical;

   b. In granting the Adjustment, the Zoning Administrator has imposed project requirements and/or decided that the proposed project will substantially comply with the purpose and intent of all applicable regulations;

   c. In granting the Adjustment, the Zoning Administrator has considered and found no detrimental effects of the Adjustment on surrounding properties and public rights-of-way;

   d. The project is compatible with the neighborhood character of the surrounding district; and

   e. The project is consistent with relevant policies of the General Plan.

G. Appeals. Adjustment Process decisions are subject to the appeal provisions of Chapter 21.21, Appeals.

H. Effective Date. A decision that an Adjustment has been granted shall be effective when such a decision is made by the Zoning Administrator, or their designee, unless the decision is appealed within 10 days of the decision.

(ORD-24-0015 § 1(Exh. A), 2024)

CHAPTER 22.15 USES

22.15.010 General Provisions.

A. Permitted Uses. The Permitted Use tables establish the land use permissions applicable to the zones identified within this Section. Use permissions shall be applicable to all existing and new uses, structures, and activities within the identified zone.

Prior to the establishment of any land use identified in the tables of this Chapter, the applicant shall obtain all necessary approvals and permits in compliance with all applicable requirements of this Zoning Code.

B. Adaptive Reuse Projects. The application of the regulations of this Section and interpretation of standards should support adaptive reuse projects, to the extent practical, to meet the development, economic, parking, access, and mobility needs of the community. The intent of the adaptive reuse is to allow conversion of existing structures to new land uses that maintain or enhance the

character of a neighborhood or district, extend the life of the building, reduce use of new construction materials and reduce construction waste generated, and provide additional employment or housing opportunities in appropriate and compatible locations.

1. Land Use. Any residential or non-residential use permitted in the MU-1, MU-2, or MU-3 zone (or the A-Series version of these zones, as applicable) shall be permitted in adaptive reuse projects as of the effective date of the zone change, with the following exceptions:

    a. No new residential uses shall be introduced through adaptive reuse into any industrial zone.

    b. Any discretionary review, including an Administrative Use Permit or Conditional Use Permit required within the MU-1, MU-2, or MU-3 zone (or the A-Series version of these zones, as applicable) for a particular use, is required for an adaptive reuse project.

    c. Existing buildings within the NI-1 or NI-2 zoning districts, shall be permitted to be adaptively reused to any use permitted within the NI-1 or NI-2 Zones.

    d. Any request for a land use not explicitly allowed within the specified zones as part of an adaptive reuse project shall require an Administrative Use Permit, subject to the procedures of Section 21.25 (Specific Procedures) of the Title 21 Zoning Regulations

2. Setbacks. Existing principal structures with non-conforming setbacks may remain. Any additions or facade changes involving greater than twenty-five (25) continuous linear feet of exterior wall facing a public right-of-way shall comply with zoning setbacks, unless waived with written findings of fact by the Site Plan Review Committee.

3. Heights. Heights of existing buildings shall be exempt from established height limits. The addition of parapets or roof structures, equipment or other enclosures or non-habitable space is allowed. Any new or additional habitable space or floors shall comply with height limits of the underlying zoning district, unless waived with written findings of fact by the Site Plan Review Committee.

4. Residential Density. Density limitations are not applicable to adaptive reuse projects.

5. Floor Area Ratio (FAR). Adaptive reuse projects are exempt from the FAR limitations of the underlying zoning.

6. Existing Parking. The overall number of existing parking spaces on-site shall be maintained. An exception for a reduction in existing parking for purposes of providing required ADA parking and access or to accommodate Electric Vehicle (EV) charging equipment shall be allowed by right.

7. Required Parking in General. No additional on-site parking shall be required for conversion to residential or commercial uses. Parking for all other uses shall be provided at the rate of 25% of the parking required in Table 30-3, for adaptive reuse projects in designated parking impacted areas. The following shall also apply:

    a. In mixed use adaptive reuse projects, the first six thousand (6,000) square feet of non-residential space shall be exempt from parking requirements.

b. Tandem parking is allowed up to fifty percent (50%) of provided spaces.

c. Shared parking arrangements shall conform to LBMC Section 21.41.222 - Off-site parking or Section 21.41.223.A - Parking-Joint Use of Parking Facility.

d. Any reduction in provided parking beyond the minimums above shall be approved by the Site Plan Review Committee.

8. Parking Incentives. Additional parking reductions for incentivized uses and conversion of historic landmark buildings, as set forth in Section 22.15.010.B.7 and Table 30-3, shall also apply.

9. Other provisions. Landscaping, Open Space, and any other applicable development standards of the underlying zone would have to be complied with, unless infeasible for a proposed project or waived by the Site Plan Review Committee.

C. Prohibited Uses. Uses not listed in this chapter are prohibited, unless determined to be similar compatible uses, consistent with Section 22.15.010.D below.

D. Unlisted or Similar Compatible Uses. Any land use that is not specifically listed in this chapter for the applicable zone shall not be permitted within the zone. However, the Zoning Administrator shall have the authority to determine whether the proposed use may be permitted when all the following findings are made by the Zoning Administrator in writing:

1. The characteristics of, and activities associated with, the proposed use are equivalent to and compatible with, one or more of the listed permitted uses and will not involve a higher level of activity or intensity than the permitted uses.

2. The proposed use is substantially similar to a listed permitted use.

3. The proposed use is compatible with the purpose and intent of the applicable zone.

4. The proposed use has similar traffic, noise, light, odor, and other operational impacts as a listed permitted use.

5. The operation of the proposed use will not be detrimental to existing uses in the area of influence.

E. Temporary Uses. Any temporary use not specifically regulated by this Chapter shall be governed by the applicable regulations as set forth elsewhere in the Long Beach Municipal Code.

(ORD-24-0015 § 1(Exh. A), 2024)

22.15.020 Land Use Operations.

Mixed-use development requires special attention to the compatibility and livability amongst all uses within a building and the adjacent uses/buildings. Within the mixed-use Zones:

1. No operations conducted on any property shall create objectionable and/or noxious dust, light, matter, mud, noise, odor, refuse, smoke, steam, vibration, maintenance needs of grounds or buildings, or other nuisance(s).

2. No land use shall be detrimental to the health and welfare of the surrounding community. See Site Design Standards and referenced use standards sections for further requirements.

(ORD-24-0015 § 1(Exh. A), 2024)

22.15.030 Permit Requirements—Permitted Uses.

All permitted land uses are identified by a permit type consistent with Table 15-1. City Municipal Code section references are provided for applicable permit types.

Table 15-1 Land Use Permit Types and Processes		
Symbol	**Permit Requirement**	**Procedure/Standards Section**
Y	Yes, the use is permitted.	
N	No, the use is not permitted.	
C	Conditional use permit required.	Chapter 21.25 Div. II/Chapter 21.52 Div. II
AP	Administrative use permit required.	Chapter 21.25 Div. IV/Chapter 21.52 Div. II
A	Accessory use subject to special development standards.	This Chapter and Chapter 21.51
T	Temporary use subject to provisions.	Chapter 21.53
IP	Interim Park Use Permit	Chapter 21.25 Div. XII/Chapter 21.52
N/A	Not applicable to the zone.	

Tables 15-2 Through Table 15-6: Permitted Uses

Table 15-2: Permitted Uses in Mixed Use (RMU/MU) Zones

Table 15-2: Permitted Uses in Mixed-Use Zones							
Uses	**Residential Mixed-Use Zones**		**Mixed-Use Zones**				**Notes and Exceptions** Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52 and the following noted standards or regulations.
	RMU3	**RMU4**	**MU-1**	**MU-2**	**MU-M**	**MU-3**	
Alcoholic Beverages Sales and Uses							
Off-Premise Sales	N	C	C	C	C	C	Subject to Section 21.52.201
On-Premise Sales	C	C	C	C	C	C	For alcoholic beverage sales exempted from the CUP process, see Section 22.20.010
Alcohol Beverage Manufacturing	C	AP	Y	C	C	AP	Subject to Section 21.45.114.
Accessory Tasting Room	C	A	A	A	A	A	
Assembly Uses							
Live or Movie Theater							
≤100 Seats	N	AP	Y	Y	Y	Y	AP for review of noise and gathering impacts on residential within 500 feet.
101+ Seats	N	N	AP	AP	AP	AP	
Assembly Uses (Accessory <25% of GFA)	Y	Y	Y	Y	Y	Y	
Religious Assembly Uses							
≤2,500 Sq. Ft. GFA and ≤100 occupants	AP	Y	Y	Y	Y	Y	
2,501≤25,000 Sq. Ft. GFA, or ≥101 Occupants	AP	AP	Y	AP	Y	Y	
≥25,000 Sq. Ft. GFA	C	C	AP	AP	AP	AP	

Table 15-2: Permitted Uses in Mixed-Use Zones							
Uses	Residential Mixed-Use Zones		Mixed-Use Zones				Notes and Exceptions Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52 and the following noted standards or regulations.
	RMU3	RMU4	MU-1	MU-2	MU-M	MU-3	
Fitness Facility							
≤2,500 Sq. Ft. GFA	AP	Y	Y	Y	Y	Y	
2,501≤10,000 Sq. Ft. GFA	AP	AP	Y	Y	Y	Y	
> 10,000 Sq. Ft. GFA	C	C	AP	AP	AP	AP	
Automobile/Vehicle/Transportation Uses							
Auto Detailing	N	N	N	N	N	N	
Auto Detailing, With Handheld Machines Only	N	N	Y	N	N	Y	Inside parking structures or garages only.
Car Wash	N	N	C	N	N	N	
Fleet Services and Towing	N	N	C	N	N	N	Single vehicle parking permitted; see Specific Use Standards. Accessory uses limited to hotel primary use only; no auto repair.
Gasoline/Diesel Fuel Sales							
Gasoline and/or Ethanol Sales	N	N	N	N	N	N	
Diesel Fuel	N	N	C	N	N	N	
Electric Vehicle Charging	A	A	A	A	A	A	
Hydrogen and Alternative Fuel	N	N	N	N	N	N	
Automotive Sales & Repair							
General Auto Repair	N	N	N	N	N	N	As defined in 21.15.280.
Minor Auto Repair	N	N	C	N	N	C	Permitted only on the ground floor, as defined in 21.15.290.
Motorcycle/Scooter/Jet Ski/Vehicle Sales	N	N	N	N	N	N	
Parts, with installation	N	N	N	N	N	N	
Parts, without installation	N	N	AP	AP	N	N	
Parking Structure							
Accessory Use	A	A	A	A	A	A	
Primary Use, Public	AP	AP	AP	AP	AP	AP	
Primary Use, Private	N	N	C	C	C	C	
Recreational Vehicle Storage	N	N	N	N	N	N	
Rental Agency							
Mobility Services	Y	Y	Y	Y	Y	Y	Shared, micro-mobility kiosks, dock-less, and/or individual mobility solutions; subject to City regulations.
Traditional Daily+ Automobile Rental	N	N	A	N	N	N	Accessory to hotel use only; no auto repair services.
Transportation Facilities	N	N	N	N	N	N	Bus terminals, bus yard, cab stands, heliports/helistops, train stations, etc.
Billboards							
Billboards/Off-Site Advertising	N	N	N	N	N	N	Regardless of size.
Civic/Institutional Uses							
Adult Day Care	AP	AP	Y	Y	Y	C	Subject to pending City regulations.
College, University, Business or Professional School	N	N	N	Y	Y	Y	
Community Center/ Senior Center	N	Y	Y	Y	Y	Y	

Table 15-2: Permitted Uses in Mixed-Use Zones							
Uses	**Residential Mixed-Use Zones**		**Mixed-Use Zones**				**Notes and Exceptions** Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52 and the following noted standards or regulations.
	RMU3	**RMU4**	**MU-1**	**MU-2**	**MU-M**	**MU-3**	
Elementary or Secondary School	N	N	Y	Y	AP	Y	Subject to standards of 21.52.263
Government Offices, Facilities, or Civic Uses	C	C	Y	AP	AP	Y	
Industrial Arts Trade School or Rehabilitation Workshop	N	N	AP	AP	AP	AP	
Mortuary or Funeral Home	N	N	C	N	N	N	
Museum	Y	Y	Y	Y	Y	Y	
Parsonage	A	A	A	A	A	A	Accessory to and on the same parcel as associated religious assembly use.
Library, Public or Private	AP	AP	Y	Y	Y	Y	
Social Service Office w/o food distribution	N	AP	Y	AP	C	AP	As defined in 21.15.2795 See Development Incentives for A series zones.
Social Service Office with food distribution	N	N	AP	N	C	C	
Tutoring center up to 2,500 sq. ft.	AP	AP	Y	Y	Y	Y	Subject to standards of section 21.52.280.
Tutoring center greater than 2,500 sq. ft.	N	C	AP	AP	AP	AP	Subject to standards of section 21.52.280.
Interim Parks							
Community Garden	IP	IP	IP	IP	IP	IP	Subject to 21.52.260.
Passive Park	Y	Y	Y	Y	Y	Y	Subject to 21.45.155.
Playground	IP	IP	IP	IP	IP	IP	Subject to 21.52.260.
Recreational Park	AP	AP	AP	AP	AP	AP	
Urban Agriculture	Y	Y	Y	Y	Y	Y	
Commercial: Business/Retail/Professional/Personal							
Indoor animal related uses with animal adoption and boarding not exceeding 25% of gross floor area (such as but not limited to animal grooming, veterinary clinic, animal lounge, animal daycare, pet shop)	Y	Y	Y	Y	Y	Y	Subject to special development standards for indoor and outdoor animal adoption and boarding 21.45.133 Such uses shall be permitted in all Planned Development (PD) Districts and Specific Plans (SP) allowing commercial uses including but not limited to land use categories described as professional and personal services, subject to Section 21.45.133.
Indoor animal related uses with animal adoption and boarding exceeding 25% of gross floor area (such as but not limited to animal grooming, veterinary clinic, animal lounge, animal daycare, pet shop)	AP	AP	AP	AP	AP	AP	
Outdoor animal daycare	AP	AP	AP	AP	AP	AP	
Bail Bonds	N	N	N	N	N	N	
Firearms or Other Weapons, Sales or Repair	N	N	N	N	N	N	
Laundromat	C	C	C	N	AP	C	
Manufacture of Products Sold On-Site	N	N	AP	A	A	A	See Specific Use Standards, Section 22.20.050 within this Chapter.

Table 15-2: Permitted Uses in Mixed-Use Zones							
Uses	**Residential Mixed-Use Zones**		**Mixed-Use Zones**				**Notes and Exceptions** Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52 and the following noted standards or regulations.
	RMU3	**RMU4**	**MU-1**	**MU-2**	**MU-M**	**MU-3**	
Basic Sales and Service: Retail/Business/Professional/Personal							
≤4,500 Sq. Ft. GFA	Y	Y	Y	Y	Y	Y	Subject to 21.52.251 in RMU3 and RMU4 zones.
>4,500 and ≤9,000 Sq. Ft. GFA	N	Y	Y	Y	Y	Y	
>9,000 Sq. Ft. GFA	N	N	Y	AP	AP	AP	
Thrift Store, Used Merchandise	N	N	Y	Y	Y	N	
Pawn Shop	N	N	N	N	N	N	
Daycare Center or Pre-School, 15 or More	Y	Y	Y	Y	Y	Y	As defined in 21.15.730, subject to 21.52.249.
Gallery/Experience/Demonstration Space	N	N	Y	Y	Y	Y	
Equipment Sales, Rental, or Repair	N	N	AP	N	N	N	Indoor only; outdoor display or sales prohibited.
Repair Services	N	N	C	N	N	N	Permitted indoor, on the ground floor only. Appliances, upholstery, lawn mowers, etc.
Self-Storage, mini-warehouse	N	N	N	N	N	N	Indoor or outdoor.
Tattoo Parlor/Piercing Studio	AP	AP	Y	Y	Y	Y	Subject to 21.45.166.
Termite and Pest Control	N	N	N	N	N	N	
Financial Services							
With Drive-Through Windows/ATM	N	N	C	C	N	C	Subject to Sections 21.45.130, 21.45.116 and 21.52.212.
Without Drive-Through Windows	Y	Y	Y	Y	Y	Y	
Alternative Financial Services (Check Cashing, Payday Loans, Cash for Gold, etc.)	N	N	N	N	N	N	
ATM, Interior	N	N	Y	Y	Y	Y	
ATM, Exterior or freestanding walk up	AP	AP	AP	AP	AP	AP	
ATM Drive-Through Machine	N	N	N	N	N	N	
Medical Uses/Services							
Convalescent Hospital or Home	N	N	N	N	C	N	
Medical Office or Clinic	AP	Y	Y	Y	Y	Y	
Hospital	N	N	N	N	N	N	
Urgent Care Facility	C	AP	AP	Y	Y	Y	
Massage Therapy	AP	AP	AP	AP	AP	AP	Allowed in all zones when provided as an accessory use only
Office, non-medical	N	N	Y	Y	Y	Y	
Outdoor or Temporary Sales							
Outdoor Flower, Plant, Fruit, or Vegetable Sales	Y	A	Y	A	A	A	Maximum of 6,000 sq. ft. for accessory uses.
Outdoor Swap Meet, Flea Market, Sales Event	T	T	T	T	T	T	Permitted only on the ground floor.
Pop-Up Shop/Stand/Itinerant Vendor	T	T	Y/T	Y/T	Y/T	Y/T	Subject to Section 22.20.100 and 21.45.135, except Subsection B.1.
Recycling Collection Center for Cans and Bottles Subject to 21.51.265							
Staff Attended	N	N	AP	N	N	N	Permitted only on the ground floor.

Table 15-2: Permitted Uses in Mixed-Use Zones							
Uses	Residential Mixed-Use Zones		Mixed-Use Zones				Notes and Exceptions Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52 and the following noted standards or regulations.
	RMU3	RMU4	MU-1	MU-2	MU-M	MU-3	
Unattended	A	A	A	A	A	A	Accessory to a grocery store only, permitted only on the ground floor.
Entertainment							
Amusement Machines (≤4)	N	A	A	A	A	A	See 21.51.205.
Banquet Room Rental, Accessory Use	N	N	A	A	A	A	Accessory to restaurant or hotel.
Banquet Room Rental, Primary Use	N	N	AP	C	C	C	
Indoor Amusement/ Entertainment Facility	N	Y	Y	AP	AP	AP	See 21.45.115.5, 21.52.203 (arcades) and Section 21.52.220.5 (computer arcades).
Outdoor Amusement/ Entertainment Facility	N	N	AP	N	N	AP	
Dancing, Accessory Use	N	A	A	A	A	A	Accessory to restaurant, hotel, banquet room only. City council hearing is required for new and transferred business licenses.
Private Club, Social Club, Night Club, Pool Hall	N	N	C	C	C	C	City Council hearing required for new and transferred business licenses; consistent with Chapter 21.32.
Other Entertainment Uses							
≤9,000 Sq. Ft GFA	C	C	AP	AP	AP	AP	See Specific Use Standards, Section 22.20.030 within this Chapter.
>9,000 Sq. Ft GFA	N	N	C	C	C	C	
Food Uses							
Grocery and Food Market							
≤4,500 Sq. Ft. GFA	Y	Y	Y	Y	Y	Y	
>4,500 and ≤9,000 Sq. Ft. GFA	AP	Y	Y	Y	Y	Y	
>9,000 Sq. Ft. GFA	AP	Y	Y	Y	Y	Y	
Restaurants & Ready-To-Eat Foods							
Restaurant	Y	Y	Y	Y	Y	Y	
Ready-to-Eat Without Drive-Through	AP	Y	Y	Y	Y	Y	
Restaurant or Ready-to-Eat With Drive-Through	N	N	N	N	N	N	Subject to Section 21.45.130.
Restaurant With Entertainment	N	C	AP	AP	AP	AP	City Council hearing required for new and transferred business licenses.
Commissary - Standalone	N	N	AP	AP	N	AP	Subject to Section 21.52.219.7.5.
Commissary - Accessory to Restaurant	A	A	A	A	A	A	Subject to Section 21.51.225.5.
Mobile Food Trucks/ Mobile Food Facility	Y	Y	Y	Y	Y	Y	Subject to Section 21.45.133.6.
Other entertainment uses, accessory to a Restaurant or Food Service Uses	AP	AP	A	A	AP	A	See Specific Use Standards in Section 22.20.030.
Outdoor Dining/Seating	A	A	A	A	A	A	Accessory to restaurant.
Vending Cart (Food Only)	AP	AP	AP	AP	AP	AP	Subject to 21.45.170 and limited operating hours.
Vending Machines (Exterior)	N	N	A	A	A	A	Accessory to existing retail sales; subject to 21.51.295.
Residential Uses							
Child Day Care Home, 14 or Fewer Children	A	A	A	A	A	A	Subject to 21.51.230.

Table 15-2: Permitted Uses in Mixed-Use Zones							
Uses	**Residential Mixed-Use Zones**		**Mixed-Use Zones**				**Notes and Exceptions** Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52 and the following noted standards or regulations.
	RMU3	**RMU4**	**MU-1**	**MU-2**	**MU-M**	**MU-3**	
Safe Parking Site	A	A	A	A	A	A	Allowed only as an accessory use to an existing institutional use where all lots are owned and operated by the same entity. Subject to 21.45.163.
Emergency Shelter	C	C	C	C	Y	C	Subject to 21.45.132.
Transitional Housing	Y	Y	Y	Y	Y	Y	
Supportive Housing	Y	Y	Y	Y	Y	Y	
Group Home (1—6 Persons)	Y	Y	Y	Y	Y	Y	
Home Occupation	A	A	A	A	A	A	Subject to 21.51.235.
Residential Units							
Live-Work Units/Artist Studio with Residence/ Shopkeeper	Y	Y	Y	Y	Y	Y	
Caretaker residence	N	N	N	N	N	N	
Multi-Family	Y	Y	Y	Y	Y	Y	Residential development shall be limited to attached configurations (rowhomes, townhomes) and detached courtyard-style multifamily development such as bungalows; single-family detached homes are prohibited.
Senior and/or Handicapped	Y	Y	Y	Y	Y	Y	
Accessory Dwelling Unit	Y	Y	Y	Y	Y	Y	
Single-Family Detached	N	N	N	N	N	N	
Residential Historic Landmark Building	Y*	Y*	Y*	Y*	Y*	Y*	*Subject to 21.52.265.5.
Room Rental	A	A	A	A	A	A	
Special Group Residence	C	C	C	C	C	C	Subject to 21.52.271.
Temporary Lodging							
Bed and Breakfast/Inn	N	C	N	N	N	N	Subject to 21.52.209; inns with fewer than seven guest rooms are exempt from CUP requirement.
Hotel	N	N	C	C	C	C	
Motel	N	N	C	N	N	N	
Youth Hostel	AP	AP	AP	AP	AP	AP	
Miscellaneous and Other Uses							
Temporary Activating Use	T	T	T	T	T	T	Subject to 21.53.115
Adult Entertainment Business	N	N	N	N	N	N	
Carnival, Event, Fair, Fiesta, Outdoor Exhibition, Seasonal Sales, Trade Show, similar	T	T	T	T	T	T	Subject to 21.53.109 and 21.53.113.
Wireless Telecommunications Facility	C	C	C	C	C	C	Building or roof-mounted only, subject to 21.56.
Electric Distribution Station/Substation	C	C	C	C	C	C	
Unattended Donation Box	A	A	A	A	A	A	Subject to accessory use standards Section 21.51.294.

Table 15-3: Permitted Uses in Commercial Zones

Table 15-3: Permitted Uses in Commercial Zones			
Uses	Commercial Zones		Notes and Exceptions Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
	C3	C-M	
Alcoholic Beverages Sales and Uses			
Off-Premise Sales	C	C	Subject to Section 21.52.201, For alcoholic beverage sales exempted from the CUP process, see Section 22.20.010
On-Premise Sales	C	C	
Alcohol Beverage Manufacturing	AP	AP	Subject to Section 21.45.114.
Accessory Tasting Room	A	A	
Assembly Uses			
Live or Movie Theater			
≤100 Seats	Y	Y	AP for review of noise and gathering impacts on residential within 500 feet.
101+ Seats	Y	Y	
Religious Assembly Uses			
≤2,500 Sq. Ft. GFA and ≤100 occupants	Y	Y	
2,501≤25,000 Sq. Ft. GFA, or ≥101 Occupants	Y	Y	
≥25,000 Sq. Ft. GFA	Y	Y	
Fitness Facility			
≤2,500 Sq. Ft. GFA	Y	Y	
2,501≤25,000 Sq. Ft. GFA	Y	Y	
> 25,000 Sq. Ft. GFA	Y	Y	
Automobile/Vehicle/Transportation Uses			
Auto Detailing	Y	N	
Auto Detailing, With Handheld Machines Only	Y	Y	Inside parking structures or garages only.
Car Wash	C	N	
Fleet Services and Towing	C/A	N	Single vehicle parking permitted; see Specific Use Standards. Accessory uses limited to hotel primary use only; no auto repair.
Gasoline/Diesel Fuel Sales			
Gasoline and/or Ethanol Sales	N	N	
Diesel Fuel	N	N	
Electric Vehicle Charging	A	A	
Hydrogen Fuel	C	N	
Automotive Sales & Repair			
General Auto Repair	N	N	As defined in 21.15.280.
Minor Auto Repair	C	N	Permitted only on the ground floor. Subject to 21.52.206, as defined in 21.15.290.
Motorcycle/Scooter/Jet Ski/Vehicle Sales	AP	N	Indoor only.
Auto Sales	C	N	
Parts, with installation	N	N	
Parts, without installation	Y	AP	
Parking Structure			
Accessory Use	A	A	
Primary Use, Public	AP	AP	
Primary Use, Private	C	C	
Recreational Vehicle Storage	N	N	

Table 15-3: Permitted Uses in Commercial Zones			
Uses	**Commercial Zones**		**Notes and Exceptions** Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
	C3	**C-M**	
Rental Agency			
Mobility Services	Y	Y	Shared, micro-mobility kiosks, dock-less, and/or individual mobility solutions; subject to City regulations. Accessory to hotel use only; no auto repair services.
Traditional Daily+ Automobile Rental	Y	Y	
Transportation Facilities	N	N	Bus terminals, bus yard, cab stands, heliports/helistops, train stations, etc.
Billboards			
Billboards/Off-Site Advertising	C	C	Subject to Chapter 21.54.
Civic/Institutional Uses			
Adult Day Care	Y	Y	
College, University, Business or Professional	Y	Y	
School	Y	Y	
Community Center/Senior Center	Y	Y	
Elementary or Secondary School	C	C	Subject to standards of 21.52.263 and 21.52.249.
Government Offices, Facilities, or Civic Uses	Y	Y	
Industrial Arts Trade School or Rehabilitation	Y	Y	
Workshop	Y	Y	
Mortuary or Funeral Home	AP	C	Minimum 600 feet from any residential zone, as defined in 21.52.211.
Museum	Y	Y	
Parks, Plazas, Playgrounds, Open Space, Urban Agriculture	Y	Y	Subject to standards of 21.52.260, 21.45.155.
Tutoring center up to 2,500 sq. ft.	Y	Y	Subject to standards of section 21.52.280.
Tutoring center greater than 2,500 sq. ft.	AP	AP	Subject to standards of section 21.52.280.
Parsonage	A	A	Accessory to and on the same parcel as associated religious assembly use.
Library, Public or Private	Y	Y	
Social Service Office without food distribution	Y	Y	As defined in 21.15.2795. See Development Incentives for A series zones.
Social Service Office with food distribution	AP	AP	As defined in 21.15.2795. See Development Incentives for A series zones.
Interim Parks			
Community Garden	IP	IP	Subject to 21.52.260.
Passive Park	Y	Y	Subject to 21.45.155.
Playground	IP	IP	Subject to 21.52.260.
Recreational park	AP	AP	Subject to 21.45.155.
Urban Agriculture	Y	Y	Subject to 21.52.260.
Commercial: Business/Retail/Professional/Personal			
Indoor animal related uses with animal adoption and boarding not exceeding 25% of gross floor area (such as but not limited to animal grooming, veterinary clinic, animal lounge, animal daycare, pet shop)	Y	Y	Subject to special development standards for indoor and outdoor animal adoption and boarding 21.45.133. Such uses shall be permitted in all Planned Development (PD) Districts and Specific Plans (SP) allowing commercial uses including but not limited to land use categories described as professional and personal services, subject to Section 21.45.133.

Table 15-3: Permitted Uses in Commercial Zones			
Uses	**Commercial Zones**		**Notes and Exceptions** Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
	C3	**C-M**	
Indoor animal related uses with animal adoption and boarding exceeding 25% of gross floor area (such as but not limited to animal grooming, veterinary clinic, animal lounge, animal daycare, pet shop)	AP	AP	See special development standards for indoor and outdoor animal adoption and boarding, Section 21.45.133. Such uses shall be permitted in all Planned Development (PD) Districts and Specific Plans (SP) allowing commercial uses including but not limited to land use categories described as professional and personal services, subject to Section 21.45.133.
Outdoor animal daycare	AP	N	Subject to special development standards for indoor and outdoor animal adoption and boarding 21.45.133. Such uses shall be permitted in all Planned Development (PD) Districts and Specific Plans (SP) allowing commercial uses including but not limited to land use categories described as professional and personal services, subject to Section 21.45.133.
Bail Bonds	C	C	Only within 600 feet of a police station, jail, or court.
Firearms or Other Weapons, Sales or Repair	N	N	
Laundromat	AP	AP	
Manufacture of Products Sold On-Site	Y	Y	See Specific Use Standards, Section 22.20.050 within this Chapter.
Basic Sales and Service: Retail/Business/Professional/Personal			
≤4,500 Sq. Ft. GFA	Y	Y	Subject to 21.52.251 in RMU3 and RMU4 zones.
>4,500 and ≤9,000 Sq. Ft. GFA	Y	Y	
>9,000 Sq. Ft. GFA	Y	Y	Subject to 21.52.251 in RMU3 and RMU4 zones. Subject to 21.52.270.1.
Thrift Store, Used Merchandise	Y	Y	
Pawn Shop	C	C	
Daycare Center or Pre-School, 15 or More	Y	Y	As defined in 21.15.730, subject to 21.52.249.
Gallery/Experience/Demonstration Space	Y	Y	
Equipment Sales, Rental, or Repair	Y	Y	Indoor only; outdoor display or sales prohibited.
Repair Services	Y	Y	Permitted indoor, on the ground floor only. Appliances, upholstery, lawn mowers, etc.
Self-Storage, mini-warehouse (indoor only)	C	N	Subject to Section 21.52.219.7.
Tattoo Parlor/Piercing Studio	Y	Y	Indoor or outdoor.
Termite and Pest Control	Y	Y	Subject to 21.45.166.
Financial Services			
With Drive-Through Windows	C	N	Subject to Sections 21.45.130, 21.45.116 and 21.52.212.
Without Drive-Through Windows	Y	Y	
Alternative Financial Services (Check Cashing, Payday Loans, Cash for Gold, etc.)	N	N	Check Cashing, Payday Loans, Cash for Gold, etc. subject to 21.45.116.
ATM, Interior	Y	Y	
ATM, Exterior or free-standing walk up	AP	AP	
ATM Drive-Through Machine	N	N	
Medical Uses/Services			
Convalescent Hospital or Home	C	C	See Specific Use Standards, Section 22.20.050 within this Chapter.

Table 15-3: Permitted Uses in Commercial Zones			
Uses	**Commercial Zones**		**Notes and Exceptions** Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
	C3	**C-M**	
Medical Office or Clinic	Y	Y	
Hospital	Y	Y	
Urgent Care Facility	Y	Y	
Massage Therapy	Y	Y	
Office, non-medical	Y	Y	
Outdoor or Temporary Sales			
Outdoor Flower, Plant, Fruit, or Vegetable Sales	Y	Y	
Outdoor Swap Meet, Flea Market, Sales Event	Y	Y	Maximum of 6,000 sq. ft. for accessory uses.
Pop-Up Shop/Stand/Itinerant Vendor	T	T	
Recycling Collection Center for Cans and Bottles Subject to 21.51.265			
Staff Attended	AP	AP	Subject to Section 21.52.216.
Unattended	A	A	Accessory to a grocery store only, permitted only on the ground floor.
Entertainment			
Amusement Machines (≤4)	C	C	
Banquet Room Rental, Accessory Use	A	A	See Section 21.51.205.
Banquet Room Rental, Primary Use	A	A	Accessory to restaurant or hotel.
Indoor Amusement/Entertainment Facility	AP	AP	
Outdoor Amusement/Entertainment Facility	Y	Y	See Section 21.45.115.5, Section 21.52.203 (arcades) and Section 21.52.220.5 (computer arcades).
Dancing, Accessory Use	AP	AP	
Private Club, Social Club, Night Club, Pool Hall	A	A	Accessory to restaurant, hotel, banquet room only. City council hearing is required for new and transferred business licenses. City Council hearing required for new and transferred business licenses; consistent with Section 21.32.
Other Entertainment Uses			
Accessory to a Restaurant or Food Service Use	C	C	See Specific Use Standards in Section 22.20.030. City Council hearing required for new and transferred business licenses; consistent with Section 21.32.
≤9,000 Sq. Ft GFA	Y	Y	
>9,000 Sq. Ft GFA	Y	Y	
Food Uses			
Grocery and Food Market			
≤4,500 Sq. Ft GFA	Y	Y	
>4,500 and ≤9,000 Sq. Ft GFA	Y	Y	
>9,000 Sq. Ft GFA	Y	Y	
Restaurants & Ready-To-Eat Foods			
Restaurant	Y	Y	
Ready-to-Eat Without Drive-Through	Y	Y	
Restaurant or Ready-to-Eat With Drive-Through	C	N	Subject to 21.45.130.
Restaurant With Entertainment	AP	AP	City Council hearing required for new and transferred business licenses.
Commissary - Standalone	AP	N	Subject to Section 21.52.219.7.5.
Commissary - Accessory to Restaurant	A	A	Subject to Section 21.51.225.5.
Mobile Food Trucks/Mobile Food Facility	Y	Y	Subject to Section 21.45.133.6.

Table 15-3: Permitted Uses in Commercial Zones			
Uses	**Commercial Zones**		**Notes and Exceptions** Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
	C3	**C-M**	
Outdoor Dining/Seating	A	A	Accessory to restaurant.
Vending Cart (Food Only)	AP	AP	Subject to 21.45.170 and limited operating hours.
Vending Machines (Exterior)	A	A	Accessory to existing retail sales; subject to 21.51.295.
Residential Uses			
Child Day Care Home, 14 or Fewer Children	N	N	Subject to 21.51.230.
Safe Parking Site	A	A	Allowed only as an accessory use to an existing institutional use where all lots are owned and operated by the same entity. Subject to 21.45.163.
Emergency Shelter	C	C	Subject to 21.45.132.
Transitional Housing	N	N	
Supportive Housing	N	N	
Group Home (1—6 Persons)	N	N	
Home Occupation	N	N	Subject to 21.51.235.
Residential Units			
Live-Work Units/Artist Studio with Residence/Shopkeeper	N	N	
Caretaker residence	N	N	
Multi-Family	N	N	
Senior and/or Handicapped Housing	N	N	
Single-Family Attached	N	N	
Single-Family Detached	N	N	
Residential Historic Landmark Building	Y*	Y*	*Subject to 21.52.265.5.
Room Rental	A	A	Subject to 21.52.270.
Special Group Residence	N	N	Subject to 21.52.271.
Temporary Lodging			
Bed and Breakfast/Inn	N	N	
Hotel	C	C	
Motel	N	N	
Youth Hostel	Y	Y	
Miscellaneous and Other Uses			
Temporary activating use	T	T	Subject to 21.53.115
Adult Entertainment Business	N	N	
Carnival, Event, Fair, Fiesta, Outdoor Exhibition, Seasonal Sales, Trade Show, similar	T	T	Subject to 21.53.109 and 21.53.113.
Wireless Telecommunications Facility	C	C	Building or roof-mounted only, subject to 21.56.
Electric Distribution Station/Substation	C	C	
Unattended Donation Box	A	A	Subject to accessory use standards Section 21.51.294.

Table 15-4: Permitted Uses in Multi-Family (MF) Zones

Table 15-4: Permitted Uses in Multi-Family Zones			
Uses	Multi-Family Residential Zones		Notes and Exceptions Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
	MFR-L	MFR-M	
Assembly Uses			
Religious Assembly Uses			
≤3,000 Sq. Ft. GFA	AP	Y	
>3,000 Sq. Ft. GFA	C	C	
Fitness Facility			
≤3,000 Sq. Ft. GFA	AP	Y	
>3,000 Sq. Ft. GFA	N	N	
Automobile/Vehicle/Transportation Uses			
Fuel Sales			
Electric Vehicle Charging	A	A	
Parking Structure			
Accessory Use	A	A	Accessory to a separate primary use only; subject to requirements of Section 22.15.020.
Primary Use, Public	N	AP	
Primary Use, Private	N	N	
Recreational Vehicle Storage	N	N	
Courtesy parking for non-residential use	C	C	Subject to requirements of Section 21.52.221.
Rental Agency			
Mobility Services	Y	Y	Shared, micro-mobility kiosks, dock-less, and/or individual mobility solutions; consultation with Public Works is required prior to approval.
Civic/Institutional Uses			
Adult Day Care	AP	AP	
College, University, Business or Professional School	N	N	See Development Incentives for A series zones.
Community Center/Senior Center	N	N	
Elementary or Secondary School	C	C	
Government Offices, Facilities, or Civic Uses	C	C	
Museum	N	Y	
Parks, Plazas, Playgrounds, Open Space, Urban Agriculture	Y	Y	Subject to standards of 21.52.260, 21.45.155.
Parsonage	A	A	Accessory to and on the same parcel as associated religious assembly use.
Library, Public or Private	N	Y	See Development Incentives for A series zones.
Tutoring center up to 3,000 sq. ft.	N	AP	
Tutoring center greater than 3,000 sq. ft.	N	N	
Interim Parks			
Community Garden	IP	IP	Subject to 21.52.260.
Passive Park	Y	Y	Subject to 21.45.155.
Playground	IP	IP	Subject to 21.52.260.
Recreational park	AP	AP	
Urban Agriculture	Y	Y	

Table 15-4: Permitted Uses in Multi-Family Zones			
Uses	Multi-Family Residential Zones		Notes and Exceptions Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
	MFR-L	MFR-M	
Commercial: Business/Retail/Professional/Personal			
Indoor animal related uses with animal adoption and boarding not exceeding 25% of gross floor area (such as but not limited to animal grooming, veterinary clinic, animal lounge, animal daycare, pet shop)	N	N	
Indoor animal related uses with animal adoption and boarding exceeding 25% of gross floor area (such as but not limited to animal grooming, veterinary clinic, animal lounge, animal daycare, pet shop)	N	N	
Outdoor animal daycare	N	N	
ATM, Interior	N	AP	
ATM, Exterior or free-standing walk up	N	Y	
ATM Drive-Through Machine	N	N	
Bail Bonds	N	N	
Basic Sales and Service: Retail/Business/Professional/Personal			
Personal or Professional Services ≤3,000 Sq. Ft. GFA	AP	Y	Subject to 21.52.251; includes personal and professional services in Table 32-1 and other services not otherwise listed
Personal or Professional Services >3,000 Sq. Ft. GFA	N	N	
Thrift Store, Used Merchandise	N	N	
Pawn Shop	N	N	
Daycare Center or Pre-School, 15 or More	Y	Y	As defined in 21.15.730, subject to 21.52.249.
Gallery/Experience/Demonstration Space	N	N	
Equipment Sales, Rental, or Repair	N	N	Indoor only; outdoor display or sales prohibited.
Financial Services			
With Drive-Through Windows	N	N	
Without Drive-Through Windows	N	N	
Alternative Financial Services (Check Cashing, Payday Loans, Cash for Gold, etc.)	N	N	
Miscellaneous Retail and Personal Services			
Firearms or Other Weapons, Sales or Repair	N	N	
Laundromat	N	N	
Manufacture of Products Sold On-Site	N	N	

Table 15-4: Permitted Uses in Multi-Family Zones			
Uses	Multi-Family Residential Zones		Notes and Exceptions Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
	MFR-L	MFR-M	
Self-Storage, mini-warehouse (indoor only)	N	N	
Tattoo Parlor/Piercing Studio	N	AP	Subject to 21.45.166 and 21.52.251. 3,000 GFA maximum size
Repair Services	N	N	
Termite and Pest Control	N	N	
Medical Uses/Services			
Convalescent Hospital or Home	N	N	
Medical Office or Clinic	AP	Y	3,000 GFA maximum size
Hospital	N	N	
Urgent Care Facility	AP	Y	3,000 GFA maximum size
Massage Therapy			
Accessory Use	N	A	
Primary Use	N	N	
Outdoor Sales			
Outdoor Flower, Plant, Fruit, or Vegetable Sales	A	A	Maximum of 3,000 sq. ft. for accessory uses.
Outdoor Swap Meet, Flea Market, Sales Event	T	T	
Pop-Up Shop/Stand/Itinerant Vendor	N	N	
Recycling Collection Center for Cans and Bottles, Subject to 21.51.265			
Staff Attended	N	N	
Unattended	A	A	Accessory to a grocery store only, permitted only on the ground floor.
Entertainment			
Amusement Machines (≤4)	N	N	
Banquet Room Rental, Accessory Use	N	N	
Banquet Room Rental, Primary Use	N	N	
Indoor Amusement/Entertainment Facility	N	N	
Outdoor Amusement/Entertainment Facility	N	N	
Dancing, Accessory Use	N	N	
Private Club, Social Club, Night Club, Pool Hall	N	N	
Other Entertainment Uses			
Accessory to a Restaurant or Food Service Use	N	N	
≤9,000 Sq. Ft GFA	N	N	
>9,000 Sq. Ft GFA	N	N	
Food Uses			
Grocery and Food Market			
≤3,000 Sq. Ft. GFA	AP	Y	
>3,000 Sq. Ft. GFA	N	N	
Restaurants & Ready-To-Eat Foods			
Restaurant	AP	Y	Limited to 3,000 square feet maximum size.
Ready-To-Eat Without Drive-Through	AP	Y	Limited to 3,000 square feet maximum size.

Table 15-4: Permitted Uses in Multi-Family Zones			
Uses	Multi-Family Residential Zones		Notes and Exceptions Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
	MFR-L	MFR-M	
Ready-To-Eat With Drive-Through	N	N	
Restaurant With Entertainment	N	N	
Commissary - Standalone	N	N	
Commissary - Accessory to Restaurant	N	A	Subject to Section 21.21.225.5.
Mobile Food Trucks/Mobile Food Facility	N	N	
Outdoor Dining/Seating	A	A	Accessory to restaurant.
Vending Cart (Food Only)	AP	AP	Subject to 21.45.170.
Vending Machines (Exterior)	N	N	
Residential Uses			
Child Day Care Home, 14 or Fewer Children	A	A	Subject to 21.51.230.
Safe Parking Site	A	A	Allowed only as an accessory use to an existing institutional use where all lots are owned and operated by the same entity. Subject to 21.45.163.
Emergency Shelter	N	C	Subject to 21.45.132.
Transitional Housing	Y	Y	
Supporting Housing	Y	Y	
Group Home (1—6 Persons)	Y	Y	
Home Occupation	A	A	Subject to 21.51.235.
Residential Units			
Live-Work Units/Artist Studio with Residence/ Shopkeeper	Y	Y	
Caretaker residence	N	N	
Multi-Family	Y	Y	Residential development shall be limited to attached configurations (rowhomes, townhomes) and detached courtyard style multifamily development such as bungalows;
Senior and/or Handicapped Housing	Y	Y	
Accessory Dwelling Unit	Y	Y	
Single-Family Detached	N	N	Single-family detached homes are prohibited unless developed to a minimum density threshold of 30 dwelling units per acre.
Residential Historic Landmark Building	Y*	Y*	*Subject to 21.52.265.5.
Room Rental	A	A	Subject to 21.51.270.
Special Group Residence	C	C	Subject to 21.52.271.
Temporary Lodging			
Bed and Breakfast/Inn	N	C	Subject to 21.52.209.
Hotel	N	N	
Motel	N	N	
Youth Hostel	N	AP	
Miscellaneous and Other Uses			
Temporary Activating Use	T	T	
Adult Entertainment Business	N	N	

Table 15-4: Permitted Uses in Multi-Family Zones			
Uses	Multi-Family Residential Zones		Notes and Exceptions Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
	MFR-L	MFR-M	
Carnival, Event, Fair, Fiesta, Outdoor Exhibition, Seasonal Sales, Trade Show, similar	T	T	Subject to 21.53.109 and 21.53.113.
Wireless Telecommunications Facility	C	C	Building or roof-mounted only, subject to 21.56.
Electric Distribution Station/Substation	C	C	
Unattended Donation Box	A	A	Subject to accessory use standards Section 21.51.294.

Table 15-5: Permitted Uses in Neo-Industrial (NI) Zones

Table 15-5: Permitted Uses in Neo-Industrial (NI) Zones			
	Neo-Industrial Zones		Notes and Exceptions Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
	NI-1 (Neo-Industrial Focused)	NI-2 (Flexible Designation: Neo-Industrial + Commercial)	
Agriculture and Related			
Animal Specialty Services, Boarding, Kennels, Shelters	Y	AP	Subject to Section 21.45.133
Aquaculture Facilities	AP	N	
Horticulture, Urban Agriculture, Nurseries & Greenhouses (excludes cannabis)	Y	AP	
Landscape and Horticultural Services	Y	Y	
Alcoholic Beverages Sales and Uses			
Off-Premise Sales	C	C	Subject to Section 21.52.201. For alcoholic beverage sales exempted from the CUP process, see Section 22.20.010.
On-Premise Sales	C	C	
Alcohol Beverage Manufacturing	Y	Y	Subject to Section 21.45.114
Accessory Tasting Room	A	A	
Assembly Uses			
Live or Movie Theater			
≤100 Seats	N	N	
101+ Seats	N	N	
Assembly Uses (Accessory <25% of GFA)	N	AP	
Religious Assembly Uses			
≤2,500 sf GFA and ≤100 occupants	N	Y	
2,501 ≤25,000 sf GFA, or ≥101 Occupants	N	AP	
≥25,000 sf GFA	N	AP	
Fitness Facility			
≤2,500 sf GFA	N	Y	
2,501 ≤25,000 sf GFA	N	AP	
> 25,000 sf GFA	N	AP	

Table 15-5: Permitted Uses in Neo-Industrial (NI) Zones			
	Neo-Industrial Zones		**Notes and Exceptions** Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
	NI-1 (Neo-Industrial Focused)	**NI-2 (Flexible Designation: Neo-Industrial + Commercial)**	
Automobile/Vehicle/Transportation Uses			
Auto Detailing	N	N	
Auto Detailing, With Hand-held Machines Only	N	N	
Car Wash	N	N	
Fleet Services and Towing	N	N	
Fuel Sales			
Gasoline and/or Ethanol	N	N	
Diesel Fuel	N	N	
Electric Vehicle Charging	A	A	
Hydrogen Fuel	N	N	
Automotive Sales & Repair			
General Auto Repair	C	N	
Minor Auto Repair	AP	N	
Motorcycle/Scooter/Jet Ski/ Vehicle Sales	N	N	
Auto parts sales, with installation (includes, but not limited to tire store, stereo, vinyl wrap, tinting)	AP	N	Not allowed as a primary use, AUP required for accessory use.
Auto parts sales, without installation (includes, but not limited to tire store, stereo, vinyl wrap, tinting)	AP/A	A	
Parking Structures and Lots			
Accessory Use	A	A	Subject to Section 21.52.219
Principal Use, Public-owned	AP	AP	
Principal Use, Private	N	N	
Recreational Vehicle Storage	N	N	
Rental Agency			
Bicycle and scooter rentals (including electric, no gasoline motors)	Y	Y	Shared, non-motorized, kiosks, dock-less, and/or individual mobility solutions; subject to City regulations
Retail/consumer rental of personal automobiles	AP	N	
Retail/consumer rental of trucks and other utility vehicles	C	N	
Wholesale/commercial rental of trucks and other utility vehicles	C	N	
Car share rental facility or hub	AP	AP	
Publicly-owned Transportation Facilities	AP	AP	
Billboards			
Billboards/Off-Site Advertising	C	N	Subject to Section 21.54
Civic/Institutional Uses			
College or University, Business or Professional School	AP	AP	

Table 15-5: Permitted Uses in Neo-Industrial (NI) Zones			
	Neo-Industrial Zones		**Notes and Exceptions** Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
	NI-1 (Neo-Industrial Focused)	**NI-2 (Flexible Designation: Neo-Industrial + Commercial)**	
Community Center/Senior Center	Y	Y	
Elementary or Secondary School	N	N	
Government Offices, Facilities, or Civic Uses	Y	Y	
Industrial Arts Trade School or Rehabilitation Workshop	AP	AP	
Job Training and Vocational Rehabilitation	AP	AP	
Mortuary or Funeral Home	AP	C	
Crematoriums	C	N	
Parks, Plazas, Playgrounds, Open Space	Y	Y	
Parsonage	N	A	Subject to 21.52.257
Public Library	AP	AP	
Social Service Office with or without food distribution	C	AP	
Tutoring center ≤2,500 sq. ft.	N	Y	
Tutoring center >2,500 sq. ft.	N	AP	Subject to 21.52.280
Interim Parks			
Community Garden	IP	IP	Subject to 21.52.260
Passive Park	IP	IP	Subject to 21.45.155
Playground	IP	IP	Subject to 21.52.260
Recreational park	IP	IP	Subject to 21.52.260
Urban Agriculture	IP	IP	Subject to 21.52.260
Commercial: Business/Retail/Professional/Personal			
Indoor animal related uses with animal adoption and boarding ≤25% of gross floor area (such as but not limited to animal grooming, veterinary clinic, animal lounge, animal daycare, pet shop)	N	Y	Subject to 21.45.133
Indoor animal related uses with animal adoption and boarding >25% of gross floor area (such as but not limited to animal grooming, veterinary clinic, animal lounge, animal daycare, pet shop)	N	AP	Subject to 21.45.133
Outdoor animal daycare	N	AP	Subject to 21.45.134
Sales and Service: Retail/Business/Professional/Personal			
Retail, Business, Professional, and Personal Services ≤4,500 sf GFA	Y	Y	
Retail, Business, Professional, and Personal Services >4,500 sf GFA	N	Y	
Thrift Store, Used Merchandise	N	AP	

Table 15-5: Permitted Uses in Neo-Industrial (NI) Zones			
	Neo-Industrial Zones		**Notes and Exceptions** Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
	NI-1 (Neo-Industrial Focused)	**NI-2 (Flexible Designation: Neo-Industrial + Commercial)**	
Pawn Shop	N	N	
Daycare Center or Pre-School, 15 or More	N	C	As defined in 21.15.720, subject to 21.52.249
Adult or Child Day Care	N	N	
Equipment Sales, Rental, or Repair	N	Y	Indoor only; outdoor display or sales prohibited
Firearms or Other Weapons, Sales or Repair	N	N	
Laundromat	N	N	
Office, non-medical	Y	Y	Subject to maximum percent of GFA; refer to Section 22.41 Special Development Standards
Sale of Product Manufactured On-Site	Y	Y	
Tattoo Parlor/Piercing Studio	N	N	
Termite and Pest Control	N	Y	
Financial Services			
With Drive-Through Windows	N	N	
Without Drive-Through Windows	N	Y	
Alternative Financial Services (Check Cashing, Payday Loans, Cash for Gold, etc.)	N	N	
ATM, Interior	N	Y	
ATM, Exterior or free-standing walk up	N	Y	
ATM Drive-Through Machine	N	N	
Bail Bonds	N	N	
Massage Services			
Massage Therapy			
Accessory Use	N	N	
Primary Use	N	N	
Medical Uses/Services			
Convalescent Hospital or Home	N	N	
Medical Office or Clinic	AP	AP	Examples include chiropractors, dentistry, diet/nutrition center, medicine, medical laboratory, professional care providers, psychiatry, psychology, or veterinary clinic (without boarding).
Accessory on-site medical equipment supplies manufacturing	A	A	Co-located on-site with medical office and clinic
Hospital	C	C	
Urgent Care Facility	C	AP	

Table 15-5: Permitted Uses in Neo-Industrial (NI) Zones			
	Neo-Industrial Zones		Notes and Exceptions Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
	NI-1 (Neo-Industrial Focused)	NI-2 (Flexible Designation: Neo-Industrial + Commercial)	
Outdoor Sales			
Outdoor Flower, Plant, Fruit, or Vegetable Sales	N	A	Subject to 21.51.255. Maximum of 6,000 sq. ft. for accessory uses
Outdoor Swap Meet, Flea Market, Sales Event	N	T	Permitted only on the ground floor
Pop-Up Shop/Stand/Itinerant Vendor	T	T	Subject to 21.45.135, except Subsection B.1. See also Section 22.20.080 of this Chapter.
Entertainment			
Amusement Machines (≤4)	Y	Y	Subject to Section 21.51.205
Banquet Room Rental, Accessory Use	N	N	
Banquet Room Rental, Primary Use	N	N	
Indoor Amusement/Entertainment Facility	N	Y	Subject to Section 21.45.115.5, Section 21.52.203 (arcades) and Section 21.52.220.5 (computer arcades).
Outdoor Amusement/Entertainment Facility	N	N	
Dancing, Accessory Use	N	N	
Private Club, Social Club, Night Club, Pool Hall	N	N	
Museum, Art Gallery, or Exhibition space	N	Y	
Other Entertainment Uses			
Accessory to a Restaurant or Food Service Use	N	AP	
≤9,000 Sq. Ft GFA	N	C	
>9,000 Sq. Ft GFA	N	N	
Food Uses			
Grocery and Food Market			
≤4,500 sf GFA	AP	Y	
>4,500 and ≤9,000 sf GFA	N	AP	
>9,000 sf GFA	N	C	
Restaurants & Ready-To-Eat Foods			
Outdoor Dining/Seating	A	A	Accessory to restaurant. For outdoor dining within the public right of way, a Public Walkways Occupancy Permit will be required.
Restaurant	AP	Y	
Restaurant or Ready-To-Eat accessory to co-located principal use, not exceeding 25% of building GFA.	A	A	For a co-located primary use such as office, manufacturing, etc.
Restaurant or Ready-To-Eat With Drive-Through	N	N	
Commissary - Standalone	Y	Y	Subject to Section 21.52.219.7.5.

Table 15-5: Permitted Uses in Neo-Industrial (NI) Zones			
	Neo-Industrial Zones		**Notes and Exceptions** Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
	NI-1 (Neo-Industrial Focused)	**NI-2 (Flexible Designation: Neo-Industrial + Commercial)**	
Commissary - Accessory to Restaurant	A	A	Subject to Section 21.51.225.5.
Mobile Food Trucks/Mobile Food Facility	Y	Y	Subject to Section 21.45.133.6.
Vending Cart (Food Only)	AP	AP	Subject to 21.45.170
Vending Machines (Exterior)	N	N	
Residential			
Interim Housing			
Safe Parking Site	Y	AP	
Emergency Shelter	Y	AP	
Transitional Housing	C	C	
Supportive Housing	N	N	
Residential Units			
Single-Family	N	N	
Multi-Family	N	N	
Industrial			
Businesses engaged in processing, fabrication, assembly, treatment, and packaging	Y	Y	
Medical Cannabis Businesses			
Medical cannabis businesses (dispensary, cultivation, manufacturing, distribution, self-distribution, and testing)	Y	Y	Subject to buffer requirements in LBMC 5.90
Adult-Use Cannabis Business			
Dispensary ≤4,500 sf GFA	Y	Y	Subject to 5.92
Dispensary >4,500 sf GFA	N	Y	
Cannabis cultivation	Y	Y	
Cannabis distribution	AP	AP	
Cannabis Self-distribution	Y	Y	
Cannabis manufacturing/processing	Y	Y	
Cannabis testing	Y	Y	
Construction			
Building construction - general contractors and operative builders	Y	Y	
Construction - special trade contractors	Y	Y	
Contractor's office with limited outdoor accessory storage	Y	Y	
Manufacturing			
Artisan manufacturing, production and industrial service	Y	Y	Refer to 22.11 Definitions
Light manufacturing	Y	Y	Refer to 22.11 Definitions
Food and drink manufacturing (except alcohol beverage manufacturing)	Y	Y	Refer to 22.20 Specific Use Standards
Furniture and related products manufacturing	Y	Y	

Table 15-5: Permitted Uses in Neo-Industrial (NI) Zones			
	Neo-Industrial Zones		**Notes and Exceptions** Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
	NI-1 (Neo-Industrial Focused)	**NI-2 (Flexible Designation: Neo-Industrial + Commercial)**	
Medical equipment supplies manufacturing	AP/Y	AP/Y	Permitted by right when co-located on-site with medical office and clinic. Standalone primary use requires an AUP.
Textiles and apparel manufacturing	Y	Y	
Heavy manufacturing	C	N	Refer to 22.11 Definitions
Recycling Operations			
Recycling Collection Center for Cans and Bottles			Subject to 21.52.265, no more than four vending machines at one location
Staff Attended	N	N	
Unattended	N	A	Accessory to a grocery store only, permitted only on the ground floor.
Anaerobic Digestion Facility	AP	C	Refer to 22.11 Definitions
Green Materials Composting Facility	AP	C	Refer to 22.20 Specific Use Standards
Mixed Organic Composting Facility	AP	C	Refer to 22.20 Specific Use Standards
Chipping, Grinding and Mulching Facility	AP	C	Refer to 22.11 Definitions
Tire Processing Facility	C	C	
Repair shop (stove, refrigerator, upholstery, lawn mowers, etc.)	Y	Y	Permitted indoor, on the ground floor only. Appliances, upholstery, lawn mowers, etc.
Self-Storage, mini-warehouse (indoor only)	N	N	
Industrial Support Services			
Maintenance and repair services	Y	Y	
Support services associated with manufacturing and industrial uses	Y	Y	
Technology			
Biotechnology firms and manufacturers of nontoxic computer components	Y	Y	
Computer and electronic product assembly	Y	Y	
Data center	Y	Y	
Research & development	Y	Y	
Testing labs	Y	Y	
Technological support services	Y	Y	Refer to 22.11 Definitions
Transportation and Utilities			
Transportation Related Uses			
Freight or trucking terminal with no outdoor container storage	C	N	Subject to Section 21.45.168; uses with 50% or more square footage allocated to trucking will be considered to have freight as its primary use

Table 15-5: Permitted Uses in Neo-Industrial (NI) Zones			
	Neo-Industrial Zones		**Notes and Exceptions** Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
	NI-1 (Neo-Industrial Focused)	**NI-2 (Flexible Designation: Neo-Industrial + Commercial)**	
Freight or trucking terminal with outdoor container storage	N	N	Subject to Section 21.45.168; uses with 50% or more square footage allocated to trucking will be considered to have freight as its primary use
Air transportation	N	N	
Helipads	C	C	Subject to Section 21.45.168
Electric, gas and sanitary services	C	C	
Transportation equipment storage; indoors only	C	N	Use allowed only within enclosed structures
Transportation equipment outdoor storage or operations	N	N	
Public utilities and services	C	N	
Electric Distribution Station/ Substation	C	N	
Warehousing and Wholesale			
Warehousing and wholesale trade (Less than 50,000 SF of Building Area and less than five (5) large truck doors)	Y	C	Does not include personal storage or commercial storage/self-storage including recreational vehicle, and/or miniwarehouse defined in Section 21.15.570
Warehousing and wholesale trade (More than 50,001 SF of Building Area or five (5) or more large truck doors)	C	C	Refer to 22.41 Special Development Standards
Miscellaneous and Other Uses			
Adult Entertainment Business	N	N	
Wireless Facility	C	C	Subject to Chapter 21.56
Unattended Donation Box	N	A	Subject to accessory use standards Section 21.51.294
Temporary Uses			
Construction Trailer	T	T	Subject to 21.53.103
Special Events (Carnivals, Fiesta, Outdoor Exhibition, Fairs, Circuses, Grand Prix Events, Trade shows, Seasonal Sales and the like)	T	T	Subject to 21.53.109 and 21.53.113
Trailer for Real Estate Sales or Lease	T	T	Subject to 21.53.119
Trailer for Temporary Business Office	T	T	Subject to 21.53.123

(ORD-26-0018 §§ 5, 6, 2026; ORD-26-0013 §§ 1—5, 2026; ORD-24-0026 §§ 1, 2, 2024; ORD-24-0015 § 1(Exh. A), 2024)

CHAPTER 22.20 SPECIFIC USE STANDARDS

22.20.010 Alcoholic Beverage Sales.

The following alcoholic beverage sales may be exempted from the Conditional Use Permit requirement:

A. Restaurants with alcoholic beverage service only with meals. This generally means any use with a fixed bar is not exempt. A service bar is not considered a fixed bar. For example, a sushi bar, where alcoholic beverages are served at the same bar where meals are served, is considered serving alcoholic beverages only with meal service. A cocktail lounge without a bar, but with primarily service of only hors d'oeuvres and alcoholic beverages is not exempt.

B. Grocery stores with accessory sale of alcoholic beverages. For the purposes of this provision, grocery stores are defined as retail establishments for which more than seventy percent (70%) of the floor area is dedicated to selling food, and no more than thirty percent (30%) of the floor area is dedicated to selling alcohol.

C. Existing legal, nonconforming uses.

(ORD-24-0015 § 1(Exh. A), 2024)

22.20.020 Car Wash.

A. Washing area (machine/drive-through area) shall be located away from the Primary Street Frontage. The primary building, or area of the building intended for occupancy or sales, shall be located between the washing area and the Primary Street Frontage. Where this is not possible, the setback to the primary building shall be less than the setback to the washing area.

B. Outdoor washing area and vehicle queuing shall not occur in the following locations.

1. Between the building and the primary frontage.

2. Less than twenty (20) feet from an existing residential property line.

C. When located adjacent to a residential use, provisions shall be made to minimize noise, light, and odor impacts on the adjacent residential use. This may include a sound buffering acoustic wall and/or separation by a physical barrier.

D. Driveway cuts shall be limited to a maximum of one (1) per street frontage and a maximum width of twenty-four (24) feet.

(ORD-24-0015 § 1(Exh. A), 2024)

22.20.030 Entertainment Uses, Accessory to a Restaurant or Food Service Use.

A. Size limitations.

1. Accessory entertainment use shall be limited to forty percent (40%) or less of the customer service floor area and limited to a ground floor or subterranean use.

2. Within mixed-use buildings this use shall not exceed nine thousand (9,000) Sq. Ft GFA and shall be limited to a ground floor or subterranean use. Greater than nine thousand (9,000) Sq. Ft. GFA shall be prohibited in a mixed-use building with residential uses.

B. Enclosure. All entertainment shall be conducted completely within the enclosed portion of the structure, unless separately permitted.

C. Accessibility. Entertainment or other activities shall not block patron or service accessibility pathways.

D. Music and Lighting. Music-related entertainment, or entertainment including special lighting demonstrations, shall have limited operating hours between seven (7:00) a.m. and ten (10:00) p.m., unless modified through an approved Conditional Use Permit.

E. Residential adjacent conditions. Business hours shall be limited to between seven (7:00) a.m. and ten (10:00) p.m., unless otherwise modified through a Conditional Use Permit, where a use is located within five hundred (500) feet of an existing residential property.

F. Mixed-use conditions. Business hours shall be determined at the time of permit issuance for uses occurring within mixed-use buildings that include residential uses. Noise and vibration mitigations may be identified and required in lieu of business hour limitations subject to City regulations.

(ORD-24-0015 § 1(Exh. A), 2024)

22.20.040 Fleet Services and Towing.

A. All the following standards shall apply to the storage or operation of two (2) or more fleet or towing vehicles.

1. Where a primary building is located on site, the building shall be located between the vehicle storage area and the Primary Street Frontage.

2. Enclosed or garaged vehicle storage is preferred but not required.

3. In no case shall fleet or towing vehicles be parked less than ten (10) feet from an existing stand-alone single-family or multi-family property.

4. Auto repair of any kind or intensity is prohibited on site unless the repair use has been individually permitted on the parcel.

5. Chain link fencing and razor wire is prohibited.

B. Related to non-emergency transport services:

1. Storage and parking of one tow truck shall be permitted. Storage or parking of two (2) or more trucks qualifies as fleet vehicle storage.

2. Limousine services are permitted as an accessory use to a primary hotel use, consistent with the Land Use Tables 15-2, 15-3, and 15-4.

(ORD-24-0015 § 1(Exh. A), 2024)

22.20.045 Food and Drink Manufacturing.

A food and drink manufacturing facility shall be subject to the following standards:

A. Accessory retail sales are permitted.

B. All storage shall be within an enclosed building, tank, or silo, or screened from the public right-of-way by fences, walls, or landscaping.

C. Stored items shall not be stacked to a height that exceeds the height of the screening.

D. If the establishment is adjacent to residential development, Sales, service, product consumptions, and outdoor activities shall only occur between 6:00 a.m. and 10:00 p.m..

E. Shipping and receiving activities shall only occur between 6:00 a.m. and 10:00 p.m.

F. Facilities must adhere to the operational performance standards contained in this Chapter.

(ORD-24-0015 § 1(Exh. A), 2024)

22.20.050 Manufacture of Products Sold On-Site.

Artisanal and limited-production manufacture of goods is permitted where the impacts of the use (noise, light, odor, temperature, vibration, loading/unloading, storage, etc.) are compatible with the mixed-use setting of these zones and do not interfere with the daily operation of adjacent residential and non-residential uses subject to the following standards.

A. Manufacturing processes that result in vibrations, noise, or emissions inconsistent with residential habitation are prohibited within a residence. This includes, but is not limited to, cabinetry, upholstery, textile dying, welding, and metal fabrication. Such uses may be permitted in a live-work unit consistent with building code standards.

B. This use shall be limited to an accessory use in live-work/artist studio with residence/shopkeeper units, and basic sales and services uses, except in the C3 Zone.

C. Manufacturing space shall not exceed seventy percent (70%) of the gross square footage (GFA) of the basic sales and services use.

D. All manufacturing and production of products, including storage of materials and completed products, shall be conducted within an enclosed structure and shall not be located closer than twenty (20) feet to a residential-only use.

E. When located adjacent to a residential use, provisions shall be made to minimize noise, light, and odor impacts on the adjacent residential use. This may include a sound buffering acoustic wall and/or separation by a physical barrier.

F. Use of outdoor generators is prohibited.

(ORD-24-0015 § 1(Exh. A), 2024)

22.20.060 Motorcycle/Scooter/Jet Ski Sales.

A. Sales facilities are limited to indoor showrooms only.

B. Oil changes and minor on-site repair of tires, lights, etc. are allowed.

C. On-site engine repair and engine demonstrations is prohibited; drop-off for off-site repair is allowed.

D. A Conditional Use Permit is required when located above the 1st floor.

E. Sales facilities must comply with all requirements of the Long Beach Municipal Code.

(ORD-24-0015 § 1(Exh. A), 2024)

22.20.070 Green Materials or Mixed Organic Composting Facility.

A green materials or mixed organic composting facility may be permitted subject to the following standards:

A. Operational Standards

1. All materials shall be stored in an on-site enclosed building or in self-contained moveable bins (roll off or steel bins).

2. All materials stored outdoors shall be screened from public view. If the facility is located adjacent to contiguous industrial property, screening is only necessary along the street frontages.

3. Facility operator shall, at all times, maintain accurate and complete records of the amounts and types of recyclable material delivered to the facility, the amounts and types of composting material shipped offsite, and the amount of residual material bound for disposal.

4. Facility owner/operator shall be continually responsible for removal of all litter generated by the composting operation. The facility shall be swept at the end of each business day.

5. Facility owner/operator shall be responsible for any litter blowing from the recycling facility to neighboring properties.

6. Facility owner/operator shall control dust generated from the facility to the maximum extent feasible. Dust control measures may include, but are not limited to, misting systems, water trucks, manual or mechanical sweeping and use of negative ventilation.

7. Operating hours, including the collection and transportation of receptacles, shall not exceed 6:00 a.m. to 8:00 p.m. when located within 500 feet of the boundary of a residential zoned or occupied property.

8. Every operator of a composting facility shall provide written proof of legal access to on-site restroom facilities for employees and customers and must be posted inside of the building.

9. Heavy machinery used to move materials on the subject property, shall only occur within the permitted business hours.

10. All facilities shall display on the exterior a notice stating that no material shall be left outside the facility.

11. No processing of materials is permitted outside of enclosed buildings.

12. Materials (processed or unprocessed) cannot be unloaded directly on the ground and must be unloaded indoors for processing or directly into self-contained movable bins.

(ORD-24-0015 § 1(Exh. A), 2024)

22.20.080 Office, Non-Medical in Neo-Industrial Zones.

Area limitation. Office use may constitute up to 50 percent of the gross floor area of a business in the NI Zones; this is intended to allow for flexibility of use and a higher concentration of employees on-site than traditional industrial zones.

(ORD-24-0015 § 1(Exh. A), 2024)

22.20.090 Outdoor Dining.

Outdoor dining may be provided along segments of the building's front façade that are set back from the property line and may be located within the setback or on the public sidewalk. If located on the public sidewalk, a Public Sidewalk Occupancy Permit must be obtained, as outlined in the Municipal Code Chapter 14.14. The standards in Municipal Code Chapter 14.14 must be followed, including the following requirements.

A. A continuous, unobstructed path of travel must be provided to facilitate pedestrian movement within the public right-of-way.

B. Awnings that project more than six (6) feet into the public right-of-way, or that are designed to require ground support are prohibited.

C. Retractable or movable shade devices are permitted.

D. Outdoor dining shall not be fully enclosed.

Parking standards shall be based on the square footage of the indoor restaurant use; no additional parking shall be required related to outdoor dining.

(ORD-24-0015 § 1(Exh. A), 2024)

22.20.100 Pop-Up Shop/Itinerant Vendor.

A. This use shall comply with all signage standards of the municipal code.

B. Parking standards shall be based on the square footage of the permanent space hosting the vendor; no additional parking shall be required on an individual vendor basis.

C. May be conducted in conjunction with a vending cart subject to permit requirements.

(ORD-24-0015 § 1(Exh. A), 2024)

22.20.110 Vending Carts.

A. Operating hours for all uses shall be limited between the hours of seven (7:00) a.m. and ten (10:00) p.m., unless modified through an approved Conditional Use Permit.

B. Parking shall not be required for temporary or reoccurring vending carts.

C. Vending cart uses are subject to Section 21.45.170.

(ORD-24-0015 § 1(Exh. A), 2024)

CHAPTER 22.25 SPECIAL USE INCENTIVES (A-SERIES ZONES)

As of the effective date of this ordinance, the following economic development and healthy communities incentives shall be applicable to new development on properties in A-series zoning districts in the 90805 zip code. In all other areas of the City, the Special Use Incentives of the A-series zoning districts may only be applicable in areas that have been designated as Community Development Block Grant Areas by the Department of Housing and Urban Development. If a project utilizes multiple incentive options, the maximum cumulative parking reduction allowed for a project cannot exceed more than thirty percent (30%) of the total required parking for said project.

(ORD-24-0015 § 1(Exh. A), 2024)

22.25.010 Education and Institutional Uses.

The gross square footage (GFA) of the ground floor educational, community-based non-profits, and institutional uses (including schools, libraries, museums, government Offices, facilities, or civic uses), of up to nine thousand (9,000) Sq. Ft. GFA, shall not count toward the maximum FAR of a parcel or project if the following conditions are met:

A. The use is located primarily on the ground floor (use may be multi-story, only ground floor GFA shall be exempted).

B. The ground floor occupancy is designed to meet the Design of Ground Floor Retail and Pedestrian-Oriented Uses standards of Sections 22.30.060.A and 22.30.060.B.

(ORD-24-0015 § 1(Exh. A), 2024)

22.25.020 Grocery and Food Markets.

Establishment and maintenance of stores that sell fresh foods in proximity to established neighborhoods should be incentivized.

A. Minimum Fresh Foods Requirement. Any grocery or food market that devotes thirty percent (30%) or more of selling space to perishable fresh food items shall qualify to utilize the following incentives. Incentives may be used individually or together where the configuration requirements are met.

B. Intensity Incentive. The total gross square footage (GFA) of a grocery market shall not count toward the maximum FAR of a parcel or project.

C. Parking Incentives if not within a high-quality transit area per AB 2097. Grocery market required parking spaces:

1. Shall be counted as guest spaces for any residential units developed as part of a horizontal or vertical mixed-use project;

2. Shall reduce by one (1) space per one thousand (1,000) Sq. Ft. if located within a one quarter (1/4) mile of a transit stop and bicycle parking is provided on-site, or if the grocery market is developed in a vertical mixed-use format;

3. The two incentives listed above may be used individually or together where the configuration requirements are met.

(ORD-24-0015 § 1(Exh. A), 2024)

22.25.040 Community Benefits.

Projects that provide the following community benefits may qualify for development incentives:

A. Commercial space incentives for workforce development employment strategies. Projects which provide commercial space for enterprises that employ through a local workforce development organization, including the Pacific Gateway Workforce Innovation and Opportunity Network (PGWIN), shall qualify for incentives, subject to the following:

1. Employment of PGWIN trainees will be a requirement of the occupier of qualified commercial space for a minimum of five (5) years.

2. Annual certification of compliance with the above shall be completed through PGWIN and provided to the Planning Bureau.

B. Historic market commercial rents for community businesses. Projects which provide commercial rents at a historic market rate to existing local businesses shall qualify for the corresponding incentives, subject to the following:

1. "Historic market rate" rents shall be defined as the average per-square-foot market rent for the local market for the last three (3) years prior to the proposed lease agreement. Maximum annual rent increase shall be limited to four percent (4%);

2. An existing local business shall provide evidence of business history, including business license history, with the City of Long Beach of at least five (5) years in the corresponding local market, to the satisfaction of the Department of Community Development; and

3. Submit annual certification of the lease agreement rate to the City of Long Beach Department of Community Development; a minimum commercial lease length of five (5) years is required to qualify.

C. For projects that comply with either or both of the community benefit requirements, said projects will qualify to have the corresponding commercial space(s) exempted from maximum floor area limitations and parking requirements.

(ORD-24-0015 § 1(Exh. A), 2024)

22.25.050 Climate Mitigation and Adaptation Incentives.

A. The City of Long Beach seeks to minimize future greenhouse gas emissions from the building sector while lessening the impact of climate change stressors on the local community, including

extreme heat, air quality, drought and flooding. In addition to meeting all Green Building Standards contained in Section 21.45.400, parking incentives may be provided to one hundred percent (100%) non-residential projects that demonstrate additional strategies to reduce GHG emissions or to lessen the impact of documented climate stressors on the local community.

B. Projects may qualify for reduction in parking requirements in exchange for providing on-site or off-site climate mitigation or adaptation measures commensurate with the savings associated with the requested parking reduction, up to a maximum parking reduction of thirty five percent (35%). Measures must meet the geographic needs of the local community as demonstrated in the City's Climate Action and Adaptation Plan. Eligible measures include but are not limited to:

1. Tree planting.

2. Photocatalytic tiles to improve air quality.

3. Cool roof and/or cool wall materials.

4. On-site solar installations (for example as shade structures over parking spaces).

5. Bus shelter amenity improvements.

6. Additional bicycle amenities.

(ORD-24-0015 § 1(Exh. A), 2024)

22.25.060 Permitted Uses in A-Series Zones.

Table 25-1: Permitted Uses in Special Use Incentives (A-Series) Zones							
	Residential Mixed-Use Zones		Mixed-Use Zones			Commercial Zones	Notes and Exceptions Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
Uses	RMU3-A	RMU4-A	MU-1-A	MU-2-A	MU-3-A	C3-A	
Alcoholic Beverages Sales and Uses							
Off-Premise Sales	N	N	N	N	N	N	Subject to Section 21.52.201. For alcoholic beverage sales exempted from the CUP process, see Section 22.20.010
On-Premise Sales	N	C	C	C	C	C	
Alcohol Beverage Manufacturing	C	AP	Y	C	AP	AP	Subject to Section 21.45.114.
Accessory Tasting Room	C	A	A	A	A	A	
Assembly Uses							
Live or Movie Theater							
≤100 Seats	N	N	Y	AP	Y	Y	AP for review of noise and gathering impacts on residential within 500 feet.
101+ Seats	N	N	AP	AP	AP	Y	

Table 25-1: Permitted Uses in Special Use Incentives (A-Series) Zones							
	Residential Mixed-Use Zones		Mixed-Use Zones			Commercial Zones	Notes and Exceptions Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
Uses	RMU3-A	RMU4-A	MU-1-A	MU-2-A	MU-3-A	C3-A	
Assembly Uses (Accessory <25% Of GFA)	Y	Y	Y	Y	Y	Y	
Religious Assembly Uses							
≤2,500 Sq. Ft. GFA and ≤100 occupants	Y	Y	Y	Y	Y	Y	
2,501≤25,000 Sq. Ft. GFA, or ≥101 Occupants	AP	AP	Y	AP	Y	Y	
≥25,000 Sq. Ft. GFA	C	C	AP	AP	AP	Y	
Fitness Facility							
≤2,500 Sq. Ft. GFA	Y	Y	Y	Y	Y	Y	
2,501≤25,000 Sq. Ft. GFA	AP	AP	Y	AP	Y	Y	
> 25,000 Sq. Ft. GFA	N	N	AP	AP	AP	Y	
Automobile/Vehicle/Transportation Uses							
Auto Detailing	N	N	N	N	N	N	
Auto Detailing, With Handheld Machines Only	N	N	Y	N	N	Y	Inside parking structures or garages only.
Car Wash	N	N	N	N	N	N	
Fleet Services and Towing	N	N	C	N	N	C/A	Single vehicle parking permitted; see Specific Use Standards. Accessory uses limited to hotel primary use only; no auto repair.
Gasoline/Diesel Fuel Sales							
Gasoline and/or Ethanol Sales	N	N	N	N	N	N	
Diesel Fuel	N	N	N	N	N	N	
Electric Vehicle Charging	A	A	A	A	A	A	
Hydrogen Fuel	N	N	N	N	N	N	
Automotive Sales & Repair							
General Auto Repair	N	N	N	N	N	N	As defined in 21.15.280.
Minor Auto Repair	N	N	C	N	N	C	Permitted only on the ground floor, as defined in 21.15.290.
Motorcycle/ Scooter/Jet Ski/Vehicle Sales	N	N	N	N	N	AP/C	
Parts, with installation	N	N	N	N	N	N	
Parts, without installation	N	N	AP	AP	N	Y	

Table 25-1: Permitted Uses in Special Use Incentives (A-Series) Zones							
	Residential Mixed-Use Zones		Mixed-Use Zones			Commercial Zones	Notes and Exceptions Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
Uses	RMU3-A	RMU4-A	MU-1-A	MU-2-A	MU-3-A	C3-A	
Parking Structure							
Accessory Use	A	A	A	A	A	A	
Primary Use, Public	AP	AP	AP	AP	AP	AP	
Primary Use, Private	N	N	C	C	C	C	
Recreational Vehicle Storage	N	N	N	N	N	N	
Rental Agency							
Mobility Services	Y	Y	Y	Y	Y	Y	Shared, micro-mobility kiosks, dock-less, and/or individual mobility solutions; subject to City regulations.
Traditional Daily+ Automobile Rental	N	N	A	N	N	Y	Accessory to hotel use only; no auto repair services.
Transportation Facilities	N	N	N	N	N	N	Bus terminals, bus yard, cab stands, heliports/helistops, train stations, etc.
Billboards							
Billboards/Off-Site Advertising	N	N	N	N	N	N	Regardless of size.
Civic/Institutional Uses							
Adult Day Care	AP	AP	Y	Y	C	Y	Subject to pending City regulations.
College, University, Business or Professional School	N	AP	N	Y	Y	Y	See Development Incentives for A series zones.
Community Center/Senior Center	N	Y	Y	Y	Y	Y	
Elementary or Secondary School	N	Y	Y	Y	Y	C	Subject to standards of 21.52.263
Government Offices, Facilities, or Civic Uses	C	C	Y	AP	Y	Y	
Industrial Arts Trade School or Rehabilitation Workshop	N	AP	AP	AP	AP	Y	
Mortuary or Funeral Home	N	N	N	N	N	AP	
Museum	Y	Y	Y	Y	Y	Y	
Parsonage	A	A	A	A	A	A	Accessory to and on the same parcel as associated religious assembly use.
Library, Public or Private	AP	AP	Y	Y	Y	Y	

Table 25-1: Permitted Uses in Special Use Incentives (A-Series) Zones							
	Residential Mixed-Use Zones		Mixed-Use Zones			Commercial Zones	Notes and Exceptions Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
Uses	RMU3-A	RMU4-A	MU-1-A	MU-2-A	MU-3-A	C3-A	
Social Service Office w/o food distribution	N	AP	Y	AP	Y	Y	As defined in 21.15.2795; See Development Incentives for A series zones.
Social Service Office with food distribution	N	N	AP	C	AP	AP	
Tutoring center up to 2,500 sq. ft.	AP	Y	Y	Y	Y	Y	Subject to standards of section 21.52.280.
Tutoring center greater than 2,500 sq. ft.	N	AP	AP	AP	AP	AP	Subject to standards of section 21.52.280.
Interim Parks							
Community Garden	IP	IP	IP	IP	IP	IP	Subject to 21.52.260.
Passive Park	Y	Y	Y	Y	Y	Y	Subject to 21.45.155.
Playground	IP	IP	IP	IP	IP	IP	Subject to 21.52.260.
Recreational park	AP	AP	AP	AP	AP	AP	
Urban Agriculture	Y	Y	Y	Y	Y	Y	
Commercial: Business/Retail/Professional/Personal							
Indoor animal related uses with animal adoption and boarding not exceeding 25% of gross floor area (such as but not limited to animal grooming, veterinary clinic, animal lounge, animal daycare, pet shop)	Y	Y	Y	Y	Y	Y	Subject to special development standards for indoor and outdoor animal adoption and boarding 21.45.133 Such uses shall be permitted in all Planned Development (PD) Districts and Specific Plans (SP) allowing commercial uses including but not limited to land use categories described as professional and personal services, subject to Section 21.45.133.
Indoor animal related uses with animal adoption and boarding exceeding 25% of gross floor area (such as but not limited to animal grooming, veterinary clinic, animal lounge, animal daycare, pet shop)	AP	AP	AP	AP	AP	AP	
Outdoor animal daycare	AP	AP	AP	AP	AP	AP	
Bail Bonds	N	N	N	N	N	Y	
Firearms or Other Weapons, Sales or Repair	N	N	N	N	N	AP	
Laundromat	C	AP	C	N	AP	N	

Table 25-1: Permitted Uses in Special Use Incentives (A-Series) Zones							
	Residential Mixed-Use Zones		Mixed-Use Zones			Commercial Zones	Notes and Exceptions Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
Uses	RMU3-A	RMU4-A	MU-1-A	MU-2-A	MU-3-A	C3-A	
Manufacture of Products Sold On-Site	N	N	AP	A	A	N	See Specific Use Standards, Section 22.20.050 within this Chapter.
Basic Sales and Service: Retail/Business/Professional/Personal							
≤4,500 Sq. Ft. GFA	Y	Y	Y	Y	Y	Y	Subject to 21.52.251 in RMU3 and RMU4 zones.
>4,500 and ≤9,000 Sq. Ft. GFA	N	N	Y	Y	Y	Y	
>9,000 Sq. Ft. GFA	N	N	Y	AP	AP	Y	
Thrift Store, Used Merchandise	Y	Y	Y	Y	Y	Y	
Pawn Shop	N	N	N	N	N	C	
Daycare Center or Pre-School, 15 or More	Y	Y	Y	Y	Y	Y	As defined in 21.15.730, subject to 21.52.249.
Gallery/ Experience/ Demonstration Space	N	N	Y	Y	Y	Y	
Equipment Sales, Rental, or Repair	N	N	AP	N	N	Y	Indoor only; outdoor display or sales prohibited.
Self-Storage, mini-warehouse	N	N	N	N	N	N	Indoor or outdoor.
Tattoo Parlor/Piercing Studio	N	AP	Y	Y	Y	Y	Subject to 21.45.166.
Termite and Pest Control	N	N	N	N	N	N	
Financial Services							
With Drive-Through Windows	N	N	C	N	N	C	Subject to Sections 21.45.130, 21.45.116 and 21.52.212.
Without Drive-Through Windows	N	Y	Y	Y	Y	Y	
Alternative Financial Services (Check Cashing, Payday Loans, Cash for Gold, etc.)	N	N	N	N	N	N	
ATM, Interior	N	N	Y	Y	Y	Y	
ATM, Exterior or free-standing walk up	N	AP	AP	AP	AP	AP	
ATM Drive-Through Machine	N	N	N	N	N	N	
Medical Uses/Services							
Convalescent Hospital or Home	N	N	N	N	N	C	

Table 25-1: Permitted Uses in Special Use Incentives (A-Series) Zones							
	Residential Mixed-Use Zones		Mixed-Use Zones			Commercial Zones	Notes and Exceptions Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
Uses	RMU3-A	RMU4-A	MU-1-A	MU-2-A	MU-3-A	C3-A	
Medical Office or Clinic	AP	Y	Y	Y	Y	Y	
Hospital	N	N	C	N	C	C	
Urgent Care Facility/ Minor-Medical Services	C	AP	AP	Y	Y	Y	
Massage Therapy	N	N	AP	AP	AP	AP	Allowed in all zones when provided as an accessory use only
Office, non-medical	N	N	Y	Y	Y	Y	
Outdoor or Temporary Sales							
Outdoor Flower, Plant, Fruit, or Vegetable Sales	A	A	Y	A	A	Y	Maximum of 6,000 sq. ft. for accessory uses.
Outdoor Swap Meet, Flea Market, Sales Event	T	T	T	T	T	T	Permitted only on the ground floor.
Pop-Up Shop/ Stand/Itinerant Vendor	T	T	Y/T	Y/T	Y/T	Y/T	Subject to Section 22.20.080 of this Chapter and 21.45.135, except Subsection B.1.
Recycling Collection Center for Cans and Bottles, Subject to 21.51.265							
Staff Attended	N	N	AP	N	N	AP	Permitted only on the ground floor.
Unattended	A	A	A	A	A	A	Accessory to a grocery store only, permitted only on the ground floor.
Repair Services	N	N	C	N	N	Y	Permitted indoor, on the ground floor only. Appliances, upholstery, lawn mowers, etc.
Entertainment							
Amusement Machines (≤4)	N	A	A	A	A	A	See 21.51.205.
Banquet Room Rental, Accessory Use	N	A	A	A	A	A	Accessory to restaurant or hotel.
Banquet Room Rental, Primary Use	N	N	AP	C	C	AP	
Indoor Amusement/ Entertainment Facility	N	Y	Y	AP	Y	Y	See 21.45.115.5, 21.52.203 (arcades) and Section 21.52.220.5 (computer arcades).
Outdoor Amusement/ Entertainment Facility	N	N	AP	N	AP	AP	

Table 25-1: Permitted Uses in Special Use Incentives (A-Series) Zones							
	Residential Mixed-Use Zones		Mixed-Use Zones			Commercial Zones	Notes and Exceptions Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
Uses	RMU3-A	RMU4-A	MU-1-A	MU-2-A	MU-3-A	C3-A	
Dancing, Accessory Use	N	A	A	A	A	A	Accessory to restaurant, hotel, banquet room only. City council hearing is required for new and transferred business licenses.
Private Club, Social Club, Night Club, Pool Hall	N	N	C	N	C	C	City Council hearing required for new and transferred business licenses; consistent with Chapter 21.32.
Other Entertainment Uses							
Accessory to a Restaurant or Food Service Use	AP	AP	Y	Y	Y	Y	See Specific Use Standards, Section 22.20.030 within this Chapter.
≤9,000 Sq. Ft GFA	C	C	AP	AP	AP	Y	
>9,000 Sq. Ft GFA	N	N	C	C	C	AP	
Food Uses							
Grocery and Food Market							
≤4,500 Sq. Ft. GFA	Y	Y	Y	Y	Y	Y	
>4,500 and ≤9,000 Sq. Ft. GFA	Y	Y	Y	Y	Y	Y	
>9,000 Sq. Ft. GFA	AP	AP	Y	AP	Y	Y	
Restaurants & Ready-To-Eat Foods							
Restaurant	Y	Y	Y	Y	Y	Y	
Ready-to-Eat Without Drive-Through	AP	AP	Y	Y	Y	Y	
Restaurant or Ready-to-Eat With Drive-Through	N	N	N	N	N	N	
Restaurant With Entertainment	N	N	AP	AP	AP	AP	City Council hearing required for new and transferred business licenses.
Commissary - Standalone	N	N	AP	AP	AP	AP	Subject to Section 21.52.219.7.5.
Commissary - Accessory to Restaurant	A	A	A	A	A	A	Subject to Section 21.51.225.5.
Mobile Food Trucks/Mobile Food Facility	Y	Y	Y	Y	Y	Y	Subject to Section 21.45.133.6.
Outdoor Dining/ Seating	A	A	A	A	A	A	Accessory to Restaurant.
Vending Cart (Food Only)	AP	AP	AP	AP	AP	AP	Subject to 21.45.170 and limited operating hours.
Vending Machines (Exterior)	N	N	A	A	A	A	Accessory to existing retail sales; subject to 21.51.295.
Residential Uses							
Child Day Care Home, 14 or Fewer Children	A	A	A	A	A	N	Subject to 21.51.230.

Table 25-1: Permitted Uses in Special Use Incentives (A-Series) Zones							
	Residential Mixed-Use Zones		Mixed-Use Zones			Commercial Zones	Notes and Exceptions Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
Uses	RMU3-A	RMU4-A	MU-1-A	MU-2-A	MU-3-A	C3-A	
Safe Parking Site	A	A	A	A	A	A	Allowed only as an accessory use to an existing institutional use where all lots are owned and operated by the same entity. Subject to 21.45.163.
Emergency Shelter	C	C	C	C	C	C	Subject to 21.45.132.
Transitional Housing	Y	Y	Y	Y	Y	N	
Supporting Housing	Y	Y	Y	Y	Y	N	
Group Home (1-6 Persons)	Y	Y	Y	Y	Y	N	
Home Occupation	A	A	A	A	A	N	Subject to 21.51.235.
Residential Units							
Live-Work Units/ Artist Studio with Residence/Shopkeeper	Y	Y	Y	Y	Y	N	
Caretaker residence	N	N	N	N	N	N	
Multi-Family	Y	Y	Y	Y	Y	N	Residential development shall be limited to attached configurations (rowhomes, townhomes) and detached courtyard-style multifamily development such as bungalows; single-family detached homes are prohibited.
Senior and/or Handicapped Housing	Y	Y	Y	Y	Y	N	
Accessory Dwelling Unit	Y	Y	Y	Y	Y	N	
Single-Family Detached	N	N	N	N	N	N	
Residential Historic Landmark Building	Y*	Y*	Y*	Y*	Y*	Y*	*Subject to 21.52.265.5.
Room Rental	A	A	A	A	A	N	
Special Group Residence	C	C	C	C	C	N	Subject to 21.52.271.
Temporary Lodging							
Bed and Breakfast/ Inn	N	N	N	N	N	N	Subject to 21.52.209; inns with fewer than seven guest rooms are exempt from CUP requirement.
Hotel	N	N	C	C	C	C	
Motel	N	N	N	N	N	N	
Youth Hostel	AP	AP	AP	AP	AP	AP	

Table 25-1: Permitted Uses in Special Use Incentives (A-Series) Zones							
	Residential Mixed-Use Zones		Mixed-Use Zones			Commercial Zones	Notes and Exceptions Code section numbers reference the Long Beach Municipal Code. All uses shall be subject to Chapters 21.45 and 21.52, and the following noted standards or regulations.
Uses	RMU3-A	RMU4-A	MU-1-A	MU-2-A	MU-3-A	C3-A	
Miscellaneous and Other Uses							
Temporary Activating Use	T	T	T	T	T	T	Subject to 21.53.115
Adult Entertainment Business	N	N	N	N	N	N	
Carnival, Event, Fair, Fiesta, Outdoor Exhibition, Seasonal Sales, Trade Show, similar	T	T	T	T	T	T	Subject to 21.53.109 and 21.53.113.
Cellular or Wireless Facility	C	C	C	C	C	C	Building or roof-mounted only, subject to 21.45.115 and 21.56; freestanding monopoles prohibited.
Electric Distribution Station/Substation	C	C	C	C	C	C	
Unattended Donation Box	A	A	A	A	A	A	Subject to accessory use standards Section 21.51.294.

(ORD-26-0013 § 6, 2026; ORD-24-0015 § 1(Exh. A), 2024)

CHAPTER 22.30 GENERAL PROVISIONS - DEVELOPMENT STANDARDS (RMU, MU, C ZONES)

22.30.010 Applicability and General Development Standards.

Tables 30-1 through 30-6 of this Chapter establish development standards.

A. Applicability. Tables 30-1 through 30-6 denote development standards for all RMU, MU and C zones. Regulations in these tables also apply to all sub-zones. For example, RMU3 regulations apply to RMU3, RMU3-A and any future RMU3 sub-zones.

B. Intensity (FAR). The intensity of non-residential development shall meet the established minimum required FAR and shall not exceed the maximum FAR.

1. Area dedicated to parking structures and residential uses shall not be included in the FAR calculation.

2. Mixed-use development shall not be subject to the minimum FAR requirement of Table 30-1.

C. Density (residential). Residential development density is not designated by any single standard but is calculated based on meeting the development standards delineated in Chapter 22.30, including but not limited to, building height, setbacks, parking, and open space. Density levels correlate to the General Plan in the aggregate and may vary from individual lot to lot.

D. Building Height. Building height shall be regulated by maximum number of stories and the dimensional height of the structure.

1. Building height shall be measured as the vertical distance between the adjacent sidewalk grade and highest point of the parapet (for flat roofs), or the average height of the highest and lowest ridge point of the top floor roof line (gable, pitch, hip, or other non-flat roof) that does not add to the useable square footage to the building.

2. Measurement of building height shall exclude the following features:

a. Vertical architectural projections (building elements added for architectural interest without adding interior floor area, such as towers and cupolas), not to exceed ten (10) feet above parapet height.

b. Horizontal architectural projections which cantilever five (5) feet or less from the exterior wall (or rooftop feature) shall not be included as part of the exterior wall line.

c. Rooftop guard rails or parapet walls of up to 42 inches in height.

d. Permanent unenclosed roof deck features located two (2) feet or more from the exterior wall plane (including shade or partial covering structures, or similar features) up to fifty percent (50%) of the principal building footprint.

e. All mechanical equipment (including solar panels or other alternative energy equipment/ infrastructure, elevator and mechanical equipment penthouses, and all associated screening features) up to 12 feet in vertical projection.

f. Subterranean and semi-subterranean parking.

(ORD-26-0018 § 7, 2026; ORD-24-0015 § 1(Exh. A), 2024)

Editor's note—ORD-26-0018 § 7, amended § 22.30.010 including the title to read as herein set out. The former § 22.30.010 was entitled "Tables 30-1 through 30-6 of this Title establish development standards."

22.30.020 Frontage Requirements.

A. In addition to the development standards of Table 30-2, the building character and building frontage requirements of Sections 22.30.050 and 22.30.060 shall apply to all development.

B. Active Ground Floor Urban Design Standards, Activating Uses, and Pedestrian-Oriented Uses are regulated as a minimum required percentage of block length. Standards are established in Table 30-2.

(ORD-24-0015 § 1(Exh. A), 2024)

22.30.030 Development Sites.

A. Development created through lot consolidation shall be developed as a unified site.

B. Consolidation of sites is permitted in accordance with the regulations of Title 20.

C. At the time of lot consolidation, the new development site shall identify primary and secondary (if applicable) frontages.

(ORD-24-0015 § 1(Exh. A), 2024)

22.30.040 Screening Required.

A. Screening per Section 21.32.225 shall be required for non-residential and mixed-use development.

(ORD-24-0015 § 1(Exh. A), 2024)

22.30.050 General Building Character.

Potential street frontage conditions are based on the following standards.

A. New construction and renovations shall be subject to the requirements of Section 21.45.400 (Green Building Standards) based on project type and gross square footage thresholds as outlined by Section 21.45.400.

B. Continuous blank walls, without windows, doors, or any other architectural articulation, shall be limited to fifty (50) feet, measured horizontally. Architectural articulation may include:

1. Use variation and expression of building details, form, line, colors, and materials to create visual interest.

2. Express individual units through building design wherever possible. This may be accomplished in a variety of ways, such as through use of balconies, or a change in wall plane, and/or color, and/or roof form.

(ORD-24-0015 § 1(Exh. A), 2024)

22.30.060 Active Ground Floor Urban Design Standards and Active Use Requirements.

Primary and Secondary building frontages (frontage definition, Section 22.30.140) shall incorporate urban design standards that can accommodate active retail and pedestrian-oriented ground floor uses per the percentage requirements of Table 30-2.

For the purposes of this section land uses that generate environments that are engaging to visit and that have pedestrian access are uses that are "active." Activating uses are required to be incorporated into ground floor building designs. Activating uses are further specified in Section 22.30.060.B.

A. Frontage Standards. The following conditions and standards shall apply to all Primary and Secondary Frontage setbacks:

1. Street wall. At least 50% of the primary street facing façade of a building at the ground floor shall be located within 10 feet of the property line. Minimum required and maximum allowed setback standards can be found in Table 30-2.

2. Corner cut-off. Additional standards for a required corner cut-off apply in accordance with Sections 21.31.215 and 21.32.220 of the Zoning Regulations.

3. Maximum finish floor height. Finish floor height for the first story of all non-residential or mixed-use buildings shall be within three (3) feet of curb grade.

4. Exception for sidewalk-accessible above-grade entrances. A residential building may have a finish floor height more than three (3) feet above curb grade, when creating a stoop or porch frontage directly accessible from the sidewalk. This finish floor height may be applied to individual unit entrances and multi-family residential units with a shared entrance, provided that disabled access requirements, as administered by the Building Official, may be met.

5. Blank Walls. Continuous blank walls, without windows, doors, or any other architectural articulation, shall be limited to twenty (20) feet in length, measured horizontally.

B. Active Ground Floor Requirements. Active ground floor condition requirements are established in Table 30-2 which can be satisfied by inclusion of the following pedestrian-oriented activating uses and/or the incorporation of the urban design standards of this Section. Activating uses include active uses that are accessible to the public and contribute to a high level of pedestrian activity in the public realm. Activating uses include but are not limited to the following, but shall only be permitted if the use is permitted in the applicable zoning district. The Zoning Administrator is authorized to determine if an unlisted use or feature constitutes an activating ground floor use and if it is consistent with the uses permitted by the zoning district.

1. Publicly accessible open space.

2. Restaurants and food service (not drive through).

3. Outdoor dining areas.

4. Entertainment.

5. Civic and community services (library, museum, non-profit, services, etc.).

6. Commercial personal and convenience services.

7. Commercial professional or business support services (walk-in).

8. Commercial retail sales.

9. Neighborhood-serving commercial multipurpose space.

10. Grocery or food market.

11. Medical office or clinic.

12. Veterinary clinic.

13. Urgent care facility/minor-medical services.

14. Assembly or religious assembly.

15. College, university, business or professional school.

16. Community Center/Senior Center, and other related recreation or neighborhood serving facilities.

17. Leasing or property management office.

18. Live or movie theater.

19. Daycare center or pre-school.

20. Gallery/experience/demonstration space.

21. Fitness or health facility.

22. Hotel.

23. Building lobby or building common area.

24. Bed and breakfast inn.

25. Youth hostel.

C. The following residential uses qualify as activating uses.

1. Residential use with patio, stoop, porch or other architectural entrance feature facing primary and secondary frontages on the ground floor.

2. Live-work/artist studio with residence/shopkeeper.

3. Residential lobbies, amenity spaces, recreation rooms, and community rooms, designed per Section 22.30.070.

(ORD-26-0018 § 8, 2026; ORD-24-0015 § 1(Exh. A), 2024)

22.30.070 Ground Floor Urban Design Standards for Retail, Activating, and Pedestrian-Oriented Uses.

The following standards shall apply to the design of retail, activating, and pedestrian-oriented uses:

A. Plate Height. Ground-floor height (floor-to-ceiling) for commercial uses (in a commercial or mixed use zoning district) shall be a minimum of twelve (12) feet, however fifteen (15) feet is encouraged. Ground-floor residential uses are not subject to this standard.

B. Ground Floor Entrances. The primary entrance for all uses shall be located on the primary street-facing frontage of each building, and shall open onto a sidewalk, public open space, or pedestrian pathway that is a minimum of four (4) feet in width and leads directly to the sidewalk. All entrances shall be set back at least thirty inches (30") from the public right-of-way.

1. A primary entrance shall be distinguishable by at least one of the following design features:

   a. An awning or canopy,

   b. A recessed entry, or

   c. Another architectural element or feature that creates a well-defined entrance.

2. Façade architectural and building elements (not including any building area or habitable space) may project over the public right-of-way if approved by the Director of Public Works.

C. Pedestrian Paseos. A retail building in which the rear of the development abuts a public street, and with a building street frontage of greater than two hundred (200) feet, shall provide a pedestrian path from the rear to primary frontage to allow direct pedestrian access to store entrances.

D. Orientation (all uses). Where courtyards, paseos, or greenways are proposed, restaurant, retail, or other uses shall face these spaces with at least one element of windows, front doors, or outdoor patios, which shall be designed to conform to standards of this Section. This requirement shall apply in addition to the standards for primary and secondary street frontage requirements.

E. Transparency (residential units). A residential building façade on a primary frontage shall be provided with windows for at least fifteen percent (15%) of the building façade on the ground floor. Windows shall have a transmittance factor of at least sixty percent (60%), and a reflectance factor of not greater than twenty-five percent (25%).

F. Transparency (commercial space and residential common/amenity space). A street-facing façade for commercial building area or residential common or amenity area shall be provided with windows for at least thirty percent (30%) of the building façade on the ground floor. Windows should provide views into work, display, and sales areas or a lobby, fitness center, community room, or similar space. Windows shall have a transmittance factor of at least sixty percent (60%), and a reflectance factor of not greater than twenty-five percent (25%).

1. Window area shall be measured as the percentage of the building elevation consisting of window openings between a height of two (2) and ten (10) feet above curb grade. Storefront window systems and glass doors may be included in this calculation.

2. The use of tinted, mirrored, or highly reflective coatings, films, or applications on window glass shall be prohibited.

3. Blinds, drapes, and other window treatments, signs and posters, shelving, boxes, and products, and other visual obstructions shall not obscure more than thirty percent (30%) of the total window area on each building elevation. This requirement shall not apply to treatment or exam areas or corridors of medical offices and other medical uses.

G. Pedestrian-Oriented Features. Awnings, signs, and other projecting building features shall be located at least 8 feet above the adjacent sidewalk or walkway, or higher as required by the Director of Public Works or Building Official. These features may project over the public right-of-way if approved by the Director of Public Works but shall not conflict with any adjacent street trees.

H. Awning Separation. Awnings shall be limited to individual awnings per each building storefront or tenant space, unless a larger awning is approved through the Site Plan Review procedure.

I. Outdoor dining. See Section 22.20.070 for additional standards applicable to outdoor dining.

Table 30-1 Development Standards: Intensity

Table 30-1 Development Standards: Intensity									
	Zones								Notes and Exceptions Code section numbers reference the Long Beach Municipal Code
	RMU3/ RMU3-A	RMU4/ RMU4-A	MU-1/ MU-1-A	MU-2/ MU-2-A	MU-M	MU-3/ MU-3-A	C3/C3-A	C-M	
Minimum Lot Size	3,000 sq. ft.						10,000 sq. ft.	3,000 sq. ft	Minimum only applies to new subdivision of existing lots
Maximum Building Height	Consistent with the General Plan; see City-wide District Height Map								Height limits will be designated by zoning district suffix as reflected in the General Plan Height Limit map
Commercial Floor Area Ratio (FAR) Requirements									
Minimum Required	0.0	0.0	0.25	0.5	0.5	0.5	0.25	0.25	FAR requirements apply to non-residential component only
Maximum Permitted	1.0	1.5	1.0	1.5	1.5	1.5	2.75	2.75	

Table 30-2 Development Standards: Building Placement and Activation

Table 30-2 Development Standards: Building Placement & Activation										
		Zones								Notes and Exceptions Code section numbers reference the Long Beach Municipal Code
		RMU3/ RMU3-A	RMU4/ RMU4-A	MU-1/ MU-1-A	MU-2/ MU-2-A	MU-M	MU-3/ MU-3-A	C3/C3-A	C-M	
Minimum Required Setback Building Setback - Measured from minimum property line to Building Face (Feet)[1]										
Primary Frontage See 22.30.140 for Primary and Secondary Frontage definitions										
A	Residential stories	5 ft.	3 ft.	3 ft.	5 ft.	5 ft.	3 ft.	Not Permitted	Not Permitted	
B	Non-residential Stories	5ft.	3 ft.	3 ft.	3 ft.	0 ft.	3 ft.	3 ft.	0 ft.	
C	Secondary/All Other Street Frontages	5 ft.	3 ft.	3 ft.	3 ft.	3 ft.	2 ft.	2 ft.	3 ft.	
D	Balconies	10 ft.								From face of curb, from any street. Balconies cannot encroach into public right-of-way
Interior Building Setbacks (Feet)										
E	Alley	12 ft. from centerline of the alley								

Table 30-2 Development Standards: Building Placement & Activation										
		Zones								Notes and Exceptions Code section numbers reference the Long Beach Municipal Code
		RMU3/ RMU3-A	RMU4/ RMU4-A	MU-1/ MU-1-A	MU-2/ MU-2-A	MU-M	MU-3/ MU-3-A	C3/C3-A	C-M	
Adjacent to existing single-family homes within R1 zones, where not separated by an alley										
F	Stories 1—2	4 ft.								Balconies and other open space projection cannot exceed 3 feet into required setback area on upper stories. No projection permitted at stories 1, 2.
	Stories 3 and above	9 ft.							20 ft.	
G	All Other Circumstances	0 ft.								
Active Ground Floor Condition, Minimum Required Per Lot/Development										
Primary Frontage		25%	25%	25%	25%	50%	50%	25%	50%	See Map Atlas, and Section 8 of this Chapter for standards
Secondary Frontage		-	-	-	25%	25%	50%	-	-	
Notes: 1. Projections are permitted in the required setbacks in accordance with Section 21.32.220(C).										

(ORD-26-0018 §§ 9—11, 2026; ORD-24-0015 § 1(Exh. A), 2024)

22.30.080 Additional Standards and Active Use Requirements for Main Street ("-M"-suffix) zoning districts.

The following standards shall apply to all primary and secondary street frontages in the Main Street ("-M"-suffix) zoning districts. Where the standards of this Section overlap with or differ from the standards established in Section 22.30.060 and 22.30.070, the standards of this Section shall take precedence:

A. Ground Floor Residential Units. Residential dwelling units shall be prohibited on the ground floor within thirty-five (35) feet of the primary and secondary street frontage property lines.

B. Ground Floor Unit Depth. Building area (residential or non-residential) with ground floor frontage on the primary and secondary streets shall have an average interior depth of thirty-five (35) feet and a minimum depth of twenty (20) feet, measured to the interior walls.

C. Ground Floor Entrance. A ground floor entrance to non-residential building area or residential common/amenity area shall have a finish floor height not more than eighteen inches (18") above or below curb grade, with no steps or other height changes not compliant with disabled access requirements, as administered by the Building Official.

D. Driveways and Service Access. A driveway or other service access is not permitted from the primary street frontage if other vehicular access to the site is available (see also Section 22.30.090).

E. Street wall. At least sixty-five percent (65%) of the building elevation facing the primary street frontage shall be located within three (3) feet of the property line, except areas of publicly-available open space shall not be counted against this requirement.

F. Plate Height. Ground-floor height (floor-to-ceiling) for commercial uses and residential common/amenity space shall be a minimum of fifteen (15) feet. Ground-floor residential uses are not subject to this standard.

G. Pedestrian-Oriented Features. Awnings, signs, and other projecting building features shall be located at least 8 feet above the adjacent sidewalk or walkway, or higher as required by the Director of Public Works or Building Official. These features may project over the public right-of-way if approved by the Director of Public Works but shall not conflict with any adjacent street trees.

(ORD-26-0018 § 17, 2026)

22.30.090 Parking and Vehicular Access Standards.

A. General Provisions - Parking.

Intent and Outcomes. Parking standards are intended to allow for infill development and adaptive reuse through flexibility of off-street parking location and minimum number of spaces.

B. Parking Requirements.

Table 30-3 establishes minimum vehicle parking requirements by use. No parking will be required if within a high-quality transit area per AB 2097 unless it is a hotel use.

1. Uses not listed, and all loading requirements, shall be regulated by Chapter 21.41 Off Street Parking and Loading Requirements.

2. If different land uses are part of the same project (for example, within vertical mixed-use development combining retail and residential), the parking requirements for each land use are applicable and will be added together to determine the total parking requirements for the project.

3. Minimum parking requirements for residential uses in the RMU3 and RMU4 Zones shall be met; however, parking may be 'unbundled' from individual units.

4. Calculations. In the calculation of parking requirements, fractional numbers of parking spaces, greater than 0.5, shall be rounded down to the nearest whole number.

5. Change of Use. No new parking shall be required for changes of use of any existing square footage within a building more than ten (10) years old. This Section shall not apply to the following uses: hotel, motel, inn, bed and breakfast inn, and event center.

6. Residential parking for all Title 22 zones shall not be required to comply with the garage requirement in Section 21.41.214 of Title 21. Required parking may be provided with enclosed garage, covered and uncovered parking. Covered parking may include parking provided under a carport or in an enclosed garage. Uncovered parking may comprise up to 50% of the required parking of a development project. Uncovered parking may include parking such as surface parking.

Table 30-3 Vehicular Parking Requirements *See City standard in Chapter 21.41	Minimum Zone Requirement			
Use	**RMU3; RMU3-A/ RMU4; RMU4-A**	**MU-1; MU-1-A/ MU-2; MU-2-A/ MU-M/ MU-3; MU-3-A**	**C3/C3-A/ C-M**	**Notes and Exceptions** Code section numbers reference the Long Beach Municipal Code
Residential				
0—1 Bedroom	0.75	0.5	N/A	Per unit
2 Bedrooms	1.25	1		
3 or more bedrooms	1.5	1.25		
Special group residence, assisted living, congregate care	0.33	0.25		Per bed
Senior housing	0.5	0.33		Per bed
Live-work units/artist studio with residence/shopkeeper	1.5	1		Per unit
Guest parking	1.0 per 6 units	1.0 per 8 units		
Non-Residential (including within mixed-use projects)				
Basic Sales and Service				
≤6,000 Sq. Ft. GFA	1	-	2	Per 1,000 Sq. Ft. Waived MU Zones
>6,000 Sq. Ft. GFA	2	2	3	Per 1,000 Sq. Ft.
Grocery and Food Market				
≤6,000 Sq. Ft. GFA	2	-	2	Requirement waived if developed as part of a mixed-use development; see Parking Incentives for A series zones
>6,000 Sq. Ft. GFA	2	2	2	Requirement lowered if the standards of Section 22.25.020 of this Title are met; see Parking Incentives for A series zones
Restaurant & Ready-To-Eat Foods, without drive-through or entertainment				
≤2,500 Sq. Ft. GFA	-	-	-	Parking requirements waived
2,501 ≤10,000 Sq. Ft. GFA	2	2	2	Per 1,000 Sq. Ft.
>10,000 Sq. Ft. GFA	4	2	4	Per 1,000 Sq. Ft.
Outdoor Dining	-	-	-	No additional parking required
Religious Assembly				
≤2,500 Sq. Ft. GFA	-	-	-	Per 1,000 Sq. Ft.; only applicable in UPLAN Phase 1 area
2,501 ≤25,000 Sq. Ft. GFA	3.33	3.33	3.33	Per 1,000 Sq. Ft.
> 25,000 Sq. Ft. GFA	4	4	4	Per 1,000 Sq. Ft.
Fitness Studios				
≤2,500 Sq. Ft. GFA	-	-	-	Per 1,000 Sq. Ft.; only applicable in UPLAN Phase 1 area
2,501 ≤10,000 Sq. Ft. GFA	3.33	3.33	3.33	Per 1,000 Sq. Ft.
>10,000 Sq. Ft. GFA	4	4	4	Per 1,000 Sq. Ft.
Medical Office or Clinic/Veterinary Clinic	2	2	2	Per 1,000 Sq. Ft.
Office, non-medical				
≤20,000 Sq. Ft. GFA	2	2	2	Per 1,000 Sq. Ft.
>20,000 Sq. Ft. GFA	2	2	*	Per 1,000 Sq. Ft.
Hotel	1	0.75	*	Spaces per room
Urgent Care Facility/Minor-Medical Services	2	2	2	Per 1,000 Sq. Ft.
Pop-Up Shop/Stand/Itinerant Vendor	-	-	-	Parking requirements waived
Historic Buildings & Adaptive Reuse of Non-Designated Structures				
Converted historic landmark buildings	1. No additional parking. 2. An exception for a reduction of existing parking for purposes of providing disabled access parking may be considered.			

C. Parking Setback Standards

Requirements. Table 30-4 establishes minimum required parking setbacks.

Table 30-4 Parking Setback Standards	Zones						Notes and Exceptions
	RMU3/ RMU3-A	RMU4/ RMU4-A	MU-1/ MU-1-A	MU-2/ MU-2-A/ MU-M	MU-3/ MU-3-A	C3/ C3-A/ C-M	Code section numbers reference the Long Beach Municipal Code
Required Minimum Parking Setback, ***Measured Parcel Line to Parking (Feet), applicable to surface or structured parking***							
Primary Frontage, Surface Parking	20 ft.	20 ft.	20 ft.	20 ft.	25 ft.	20 ft.	Not applicable when usable/livable/leasable space located between curb and parking This standard may be waived for lots with less than a 120 ft. depth, subject to the Screening Requirements contained within Section 22.30.090.
Primary Frontage, Parking Structure	10 ft.	10 ft.	10 ft.	10 ft.	15 ft.	10 ft.	Not applicable when usable/livable/leasable space located between curb and parking This standard may be waived for lots with less than a 120 ft. depth, subject to Section 22.30.090.E (Design of Parking Structures). See Section 22.30.090 for parking structure design guidelines.
Secondary Frontage	6 ft. landscape setback required between sidewalk and parking and shall be landscaped or decoratively hardscaped (not asphalt)						Vehicle shall not overhang sidewalk; see Chapter 21.42, for additional landscape requirements.
Alley	0 ft.						
Adjacent To:							
Residential District	5 ft.	5 ft.	5 ft.	5 ft.	5 ft.	5 ft.	
Non-residential or Mixed-use District	0 ft.						

D. Parking Location and Access.

1. Surface parking is not permitted between the building and the Primary Frontage for projects that require Site Plan Review.

2. Surface parking must be located behind the building, internal to the block, wrapped with active uses along the public frontages, or below-grade. Alterations to parking location may be reviewed by the Zoning Administrator through the Adjustment process per Section 22.30.080.

3. Access to parking shall be from side streets or alleys. If access from side streets is not possible due to lot location and/or configuration, the Primary Frontages may be used if pedestrian access and safety are incorporated into the design, as per City Standards.

E. Design of Parking Structures.

1. Screening Requirements

   a. Subject to the following standards, ground story and upper story parking structures and parking garages non-alley frontages must be screened.

   b. Screened Parking Standards-semi-subterranean, ground floor story, and upper story parking screening:

      1) Must be, on average, no less than sixty (60) percent opaque for any individual tier of parking.

2) Openings in screens must be four inches or less in at least one (1) dimension.

3) Upper story parking screening, when viewed from the sidewalk below, must not be less than sixty percent (60%) opaque.

2. Measurement

a. Opacity of screening is calculated separately for each tier of parking on each building facade.

b. Minimum opacity is measured as a percentage calculated as the sum of all open areas on a parking screen facade area divided by the total parking screen facade area.

c. Exceptions- Openings, of the minimum practical width, providing vehicular or pedestrian access are exempt from the above parking standards.

d. Relief- These standards can be relieved at the discretion of the Site Plan Review Committee.

F. Architectural Character. Whether public or private, freestanding parking structures and integrated parking podiums will be treated as buildings and follow the same principles as good building design.

1. Parking structure facades visible from the public right-of-way shall employ the same architectural style as the primary building it serves, or a complementary architectural style that shall be reviewed and approved by the Zoning Administrator.

2. Parking structures shall have an external skin designed to improve the building's appearance over the basic concrete structure of ramps, walls, and columns. This can include heavy-gauge metal screen, precast concrete panels, laminated glass, photovoltaic (solar) panels, landscape features, architecturally interesting walls, or a combination of these features.

3. Vertical circulation (elevators and stairs) shall be located along the primary pedestrian way, and shall be highlighted architecturally so visitors can easily find and access these entry points.

4. On retail-oriented streets or building frontages, parking structures shall incorporate active ground-floor uses along the street frontage of the garage.

G. Signage. Signage and wayfinding should be integrated with the architecture of the parking structure.

1. Sustainability. Parking structures shall integrate sustainable design features such as photovoltaic panels (especially on the top parking deck), renewable materials with proven longevity, and storm water treatment wherever possible.

2. Lighting. Lighting fixtures in parking areas, ingress/egress areas, and all internal circulation areas shall be directed and shielded appropriately to not illuminate surrounding properties, while promoting visibility for users. See Section 22.30.110 of the Title for additional standards.

(ORD-26-0018 §§ 12, 13, 2026; ORD-24-0015 § 1(Exh. A), 2024)

22.30.100 Joint Use and Parking Agreements.

New and adaptive reuse developments shall utilize joint use and parking agreements when available, subject to Section 21.41.223.

(ORD-24-0015 § 1(Exh. A), 2024)

22.30.110 Lighting Design for Safety.

A. In addition to the following standards, all lighting shall be consistent with Illuminating Engineering Society of North America (IES) and International Dark Sky Association (IDA) standards to prevent over-lighting of structures and spaces.

B. Building and/or site design shall include public realm pedestrian lighting to supplement street lights, contribute to the pedestrian scale of the street, and enhance safety.

1. Integrate pedestrian lighting along the length of the street and within public realm areas to facilitate visibility for "eyes on the street."

2. Light areas to be usable and safe at night and encourage nighttime pedestrian activity. This includes, but is not limited to, curb ramps, crosswalks, bus stops, plazas, paseos, mid-block connections, open spaces, parking lots and structures, seating areas, and pedestrian linkages between these areas.

C. Building design shall integrate building-mounted lighting, consistent with the design and character of the structure, to aid in lighting the following areas:

1. The pedestrian way, including areas along primary or side streets.

2. Pedestrian paths, including mid-block connections, from parking lot areas to the building or street.

3. Parking structure entryways and lobbies.

(ORD-24-0015 § 1(Exh. A), 2024)

22.30.120 Open Space Standards.

The following open space and privacy standards apply in combination with the requirements of Table 30-5.

Public open spaces directly accessible and visible from the public right-of-way are highly encouraged.

<table>
<tr><th colspan="4">Table 30-5 Open Space Standards</th></tr>
<tr><th>Type of Open Space</th><th colspan="2">Requirements</th><th>Notes</th></tr>
<tr><td rowspan="5">For Residential and Mixed-Use Projects: Common Open Space, by lot size</td><td rowspan="2">Residential Lot Size</td><td colspan="2">Amount of Lot to be Provided as Outdoor Open Space</td><td rowspan="5">1. Each project shall provide common open space that can be provided as a combination of indoor and outdoor open space. Open space is not required to be provided at the ground floor level; however, projects that provide at least 50% of the required open space at the ground floor and make it publicly accessible shall be allowed a 30% reduction in the open space required. In no cases shall this reduction result in less than 500 square feet of common open space. Publicly accessible space shall have unimpeded access to the public during daytime hours, with onsite signage stating public access hours.
2. Public open spaces directly accessible and visible from the public right-of-way are highly encouraged.
3. Minimum dimensions of at least one portion of the open space shall measure 16 ft x 30 ft or greater.
4. All common outdoor open space shall be well designed. Common outdoor open space may include landscaped/hardscaped building setbacks (in excess of minimum requirements), paseos, mid-block crossings, rooftop decks, court game areas, tot lots, swimming pools, landscaped areas, community gardens, and courtyards. At least 20% of the open space shall be planting.</td></tr>
<tr><td>Projects with 21+ Res. Units</td><td>Projects of 20 or fewer residential units</td></tr>
<tr><td><4,500 Sq. Ft.</td><td colspan="2">500 Sq. Ft.</td></tr>
<tr><td>4,501 Sq. Ft. - 10,000 Sq. Ft.</td><td>1,000 Sq. Ft.</td><td>500 Sq. Ft.</td></tr>
<tr><td>10,001 Sq. Ft. - 30,000 Sq. Ft.</td><td colspan="2">10%</td></tr>
<tr><td></td><td>>30,000 Sq. Ft.</td><td colspan="2">5% or a minimum of 3,000 Sq. Ft., whichever is greater</td></tr>
<tr><th colspan="4">Additional Standards for Projects of 50,000 square feet or more of Buildable Area</th></tr>
<tr><td>Common Indoor Open Space</td><td colspan="2">Each project shall provide at least one community room of at least 500 Sq. Ft.</td><td>1. The area shall be located adjacent to, and accessible from the common outdoor open space.
2. Area may contain active or passive recreational facilities, meeting space, exercise rooms, or other activity space accessible through a common corridor.</td></tr>
</table>

(ORD-24-0015 § 1(Exh. A), 2024)

22.30.130 Fence Regulations.

Fences and garden walls are permitted accessory structures in all zones, subject to the conditions and requirements set forth in this Section.

A. Height limits.

Fence and garden wall heights shall not exceed the maximum heights set forth in Table 30-6. Fence heights shall be measured from grade adjoining the fence on the public right-of-way side of the fence (for fences adjoining the public right-of-way) and the average grade of both sides of the fence (for fences between two (2) private properties). For fences in flood hazard zones where the Building Code requires the finish floor of a building to be constructed at or above the top of the flood plain, fence height shall be measured from the top of the flood plain.

B. Prohibited fence and wall materials.

Barbed wire or similar fencing with sharp, protruding objects capable of cutting or puncturing a person is prohibited. Such objects shall not be attached to, imbedded in, or laid upon any fence or wall. This restriction does not include decorative wrought iron.

Table 30-6 Fence Height Limits	Zones						Notes and Exceptions
	RMU3/ RMU3-A	RMU4/ RMU4-A	MU-1/ MU-1-A	MU-2/ MU-2-A	MU-3/ MU-3-A	C3/ C3-A	Code section numbers reference the Long Beach Municipal Code
Fence Vertical Height Limit							
Within required street frontage setback	3 ft.	3 ft.	3 ft.	3 ft.	6 ft.	6 ft.	
Abutting residential front yard	3 ft.	3 ft.	3 ft.	3 ft.	3 ft.	6 ft.	
Abutting residential side or rear yard	8 ft.						
Other yard	12 ft.						

C. Fence Height Limitations. The limitations in Table 30-6 shall not apply in the following instances:

1. Where a greater height is required by any other City ordinance.

2. Where a greater height is required by a conditional approval of a permit pursuant to this Title or is required by State or Federal law.

3. Where a wall return of greater height is allowed.

4. In corner cutoff areas, chain link and wrought iron/metal tubing fences more than three feet (3') in height are allowed if they do not obstruct visibility.

(ORD-24-0015 § 1(Exh. A), 2024)

22.30.140 Frontage Locations.

Primary and Secondary frontages shall be defined in accordance with the Long Beach General Plan Mobility Element as shown in Table 30-7. For parcels located on multiple streets, the Primary frontage shall be the higher of whichever street classification is designated for a given parcel; in instances where two streets have the same designation the Primary and Secondary frontage shall be determined by the Zoning Administrator through the Adjustment process per Section 22.13.104.

In all instances where a street is designated as Neighborhood Connector or higher classification the Primary frontage parking requirements shall apply regardless of street hierarchy.

Table 30-7 Street Classification

Street Classification	System Definition	Frontage Type	Special Considerations
Regional Corridor	Designed for intraregional and intercommunity mobility, these corridors emphasize traffic movement and include signalized pedestrian crossings. The adjacent land uses should provide continuous mixed-use and commercial land uses with adequate off-street parking to minimize dependency on on-street parking.	Primary	Streets are classified as primary, even when intersecting with one another.
Boulevard	Characterized by a long-distance, medium-speed corridor that traverses an urbanized area, boulevards consist of four or fewer vehicle travel lanes, a balanced multimodal function, landscaped medians, on-street parking, narrower travel lanes, more intensive land use oriented to the street, and wide sidewalks. Buildings uniformly line the edges. Multiway boulevards, a variation of the boulevard characteristic of post war neighborhoods, contain a central roadway for through traffic and parallel roadways for access to abutting property parking, and pedestrian and bicycle facilities. Parallel roadways are separated from the through-lane by curbed, landscaped islands that may also provide transit stops and pedestrian facilities.	Primary	
Major Avenue	A major avenue serves as the major route for the movement of traffic within the City as well as a connector to neighboring cities. Most traffic using a major avenue will end the trip within the City (as opposed to through-traffic). As such, design treatment and traffic operation should give preference to this type of traffic. Long corridors with typically four or more lanes, avenues may be high transit ridership corridors. Goods movement is typically limited to local routes and deliveries.	Primary	
Minor Avenue	A minor avenue provides for the movement of traffic to neighborhood activity centers and serves as a route between neighborhoods. Avenues serve as a primary bicycle route and may serve local transit routes as well.	Primary (A)	Classified secondary when intersecting with Neighborhood connector if Neighborhood Connector Street has high volumes of existing active transportation.
Neighborhood Connector	A neighborhood connector street serves trips generated in surrounding or adjacent neighborhoods and should discourage through-trips that do not end within the neighborhood. Goods movement is restricted to local deliveries only.	Primary (A)	Classified as secondary when intersecting with Minor Avenue except for Neighborhood Connectors with high volumes of active transportation that can benefit from enhanced design.

Table 30-7 Street Classification Street Classification	System Definition	Frontage Type	Special Considerations
Local Street	Local streets primarily provide access to individual residential parcels. The streets are generally two lanes with on-street parking, tree planting strips, and sidewalks. Traffic on a local street should have a trip end on that street, or on a connecting local street, or to a connector.	Secondary (A)	
Notes: (A) For parcels located on multiple streets, the Primary frontage shall be the higher of whichever street classification is designated for a given parcel with the exception of Regional Corridor, Boulevard, and Major Avenue which are to always be designated as primary frontage.			

(ORD-24-0015 § 1(Exh. A), 2024)

CHAPTER 22.35 TEMPORARY SUSPENSION OF CERTAIN PROVISIONS OF TITLE 22 DURING A PROCLAIMED LOCAL EMERGENCY CAUSED BY HOMELESSNESS

22.35.010 Purpose.

In order to protect the public safety, health and welfare within the City of Long Beach, this Chapter provides a temporary suspension of rules related to Title 22 of the Long Beach Municipal Code for the duration of a proclaimed local emergency caused by a dramatic increase in homelessness, a dramatic increase in the number of deaths of persons experiencing homelessness, an incredible and unprecedented strain on the City's ability to provide appropriate shelter and housing and public safety concerns due to violence and severe mental and physical health issues.

(ORD-24-0015 § 1(Exh. A), 2024)

22.35.020 Suspensions.

A. Suspend provisions of Title 22 that pertain to construction of emergency shelters, transitional housing, supportive housing, affordable housing, and any other physical improvements to address the City's proclaimed local emergency caused by homelessness, in any location, as reviewed and approved by the Directors of Development Services and Health and Human Services, and subject to any conditions imposed by these departments. All project reviews shall be completed within 60 days from the filing of project application.

B. Suspend provisions of Title 22 that pertain to the construction of social service facilities, social service facilities with food distribution, personal storage facilities and related uses that facilitate services to address the City's proclaimed local emergency caused by homelessness, in any location, as reviewed and approved by the Directors of Development Services and Health and Human Services, and subject to any conditions imposed by these departments. All project reviews shall be completed within 60 days from the filing of project application.

C. Suspend provisions of Title 22 that pertain to the construction and operation of safe parking sites, Recreational Vehicle (RV) parking, and other temporary or semi-temporary uses of space for services to address the City's proclaimed local emergency caused by homelessness, in any location,

as reviewed and approved by the Directors of Development Services and Health and Human Services, and subject to any conditions imposed by these departments. All project reviews shall be completed within 60 days from the filing of the project application.

D. Suspend provisions of Title 22 that pertain to the construction and operation of mental health care facilities, hospitals, clinics, offices and otherwise, in any location, as reviewed and approved by the Directors of Development Services and Health and Human Services, and subject to any conditions imposed by these departments. All project reviews shall occur during a 60-day period from filing.

E. Suspend provisions of Title 22 that pertain to the construction and operation of substance abuse facilities, hospitals, clinics, offices and otherwise, in any location, as reviewed and approved by the Directors of Development Services and Health and Human Services, and subject to any conditions imposed by these departments. All project reviews shall be completed within 60 days from the filing of project application.

F. Suspend provisions of Title 22 that pertain to the construction of fencing, including fencing that deviates from the height and material requirements of the municipal code, to secure buildings, lots and facilities to prevent trespassing or encampment, in any location, as reviewed and approved by the Directors of Development Services and Health and Human Services, and subject to any conditions imposed by these departments.

G. Suspend rules within Title 22 that pertain to Accessory Dwelling Units in the limited circumstances of an existing unpermitted unit occupied by tenant(s). Upon receipt of an application, and subject to discretion of the Director of Development Services, allow for the legalization of any existing structure occupied by tenant(s), as an Accessory Dwelling Unit, despite conflicting provisions of other local laws.

(ORD-24-0015 § 1(Exh. A), 2024)

22.35.030 Expiration.

This Chapter 22.35 shall expire One Hundred Eighty (180) days after its effective date, unless further extended by the City Council in its discretion by an amendment to this Chapter.

(ORD-24-0015 § 1(Exh. A), 2024)

CHAPTER 22.40 GENERAL PROVISIONS - DEVELOPMENT STANDARDS (MFR ZONES)

22.40.010 Tables 40-1 and 40-2 of this chapter establish development standards.

A. Applicability. All development in the MFR districts shall comply with the development standards set forth in Tables 40-1 and 40-2. Refer to Table 40-1 that establishes the maximum intensity standards such as Floor Area Ratio (FAR) and maximum building heights. Refer to Table 40-2 that establishes the development standards that includes setbacks, stepbacks, open space, and storage. Below is an overview of each of the development standards.

B. Site Plan Review. Site Plan Review shall be required for all projects with ten (10) or more units in the MFR zoning districts. This includes both new construction and additions to projects that result in a total of ten (10) or more units on the subject lot.

C. Density. Residential development density is not designated by any single standard but is calculated based on meeting the development standards delineated in Chapter 22.40, including but not limited to building height, setbacks, parking, open space. Density levels correlate to the General Plan in the aggregate and may vary from individual lot to lot.

D. Floor Area Ratio (FAR). The intensity of non-residential uses allowed within MFR zones shall be limited by the maximum FAR established by the General Plan as reflected in Table 40-1.

a. For mixed-use projects the FAR maximum shall only apply to the non-residential gross floor area of the project.

b. Residential gross floor area of the project shall be limited by maximum density and shall be exempt from the FAR limit.

c. FAR calculations shall adhere to the requirement of Section 21.31.235.

E. Building Height. Building height shall be regulated by maximum number of stories and the dimensional height of the structure.

1. Building height shall be measured as the vertical distance between the adjacent sidewalk grade and highest point of the parapet (for flat roofs), or the average height of the highest and lowest ridge point of the top floor roof line (gable, pitch, hip, or other non-flat roof) that does not add to the useable square footage to the building.

2. Measurement of building height shall exclude the following features:

    a. Vertical architectural projections (building elements added for architectural interest without adding interior floor area, such as towers and cupolas), not to exceed ten (10) feet above parapet height.

    b. Horizontal architectural projections which cantilever five (5) feet or less from the exterior wall (or rooftop feature) shall not be included as part of the exterior wall line.

    c. Rooftop guard rails.

    d. Permanent unenclosed roof deck features located two (2) feet or more from the exterior wall plane (including shade or partial covering structures, or similar features) up to fifty percent (50%) of the principal building footprint.

    e. All mechanical equipment (including solar panels or other alternative energy equipment/ infrastructure, elevator and mechanical equipment penthouses, and all associated screening features) up to 12 feet in vertical projection.

    f. Subterranean and semi-subterranean parking.

Table 40-1 Development Standards: Intensity Legend: Acre=ac Feet = ft. Dwelling unit = du Square feet = sf. Maximum= Max Minimum=Min	Zones		Notes and Exceptions:
	MFR-L	MFR-M	
Density			
Maximum non-residential FAR	0.5	0.75	
Lot Dimensions			
Min Lot Width (ft.)	25 ft.	50 ft.	
Min Lot Width (corner) (ft.)	25 ft.	55 ft.	
Height/Stories			
Maximum Number of Stories	Consistent with the General Plan; see Citywide District Height Map		Measured from existing grade; subterranean and semi-subterranean parking shall not be counted toward building height. Individual stories cannot exceed 15 feet in height.

(ORD-24-0015 § 1(Exh. A), 2024)

22.40.020 Yard Requirements.

Yards (Building setbacks) shall be provided as set forth in Table 40-2. Yards are regulated by establishing minimum setback requirements from property line to building for street frontage, and from interior and rear lot lines. The following standards apply to the measurement of required yard areas:

A. Measurement of required setbacks shall be taken after dedications and reservations for required rights-of-way consistent with Section 21.31.215.a.

B. Required Setback areas shall be free of any projections, structures and architectural features except as permitted herein or in Table 31-3 in Section 21.31

C. Building placement adjacent to alleys shall not obstruct vehicular or delivery access through the alley. Building setback dimensions have been established to prevent illegal parking of vehicles in the alley. If covered or uncovered parking access is provided from the alley, the minimum requirements shall apply:

1. Parallel parking shall be prohibited within any building setback of less than 10 feet.

2. Angled or perpendicular parking shall be prohibited within any building setback of less than 18 feet.

Table 40-2 Development Standards: Building Placement Legend: Acre=ac Feet = ft. Dwelling unit = du Square feet = sf. Maximum= Max Minimum=Min	Zones		Notes and Exceptions:
	MFR-L Zone	MFR-M Zone	
Minimum Setbacks			
Street Setback (ft.)	8 ft.	5 ft.	
Interior Side Setback (ft.)	4 ft.	4 ft.	
Interior Rear Setback (ft.)	7 ft.	5 ft.	
Open Space			
Types of Open Space	Requirements		Notes
Common Usable Outdoor Open Space - as a percentage of the lot area	Number of Residential Dwelling Units	% of Common Outdoor Open Space	• Common open space may include rooftop decks, court game areas, tot lots, swimming pools, landscaped areas, community gardens, and courtyards. Minimum 10% of open space area shall be planting 8 ft. minimum dimension for common outdoor open space
	10 units or less	Exempt	
	11 units or more	5% of the lot area	
Private Usable Open Space	36 sf. minimum private open space area, per unit; 6 ft. minimum width dimension		• For projects with 20 units or greater at least 50% of all residential dwelling units shall provide private open space on a balcony, patio or roof terrace unless waived by the Zoning Administrator through the Adjustment process per 22.13.104
Notes			

(ORD-26-0018 § 14, 2026; ORD-24-0015 § 1(Exh. A), 2024)

22.40.030 Fence Regulations.

Fences and garden walls are permitted accessory structures in all Multi-Family Residential zones, subject to the conditions and requirements set forth in this Section.

A. Height limits.

Fence and garden wall heights shall not exceed the maximum heights set forth in Table 40-3. Fence heights shall be measured from grade adjoining the fence on the public right-of-way side of the fence (for fences adjoining the public right-of-way) and the average grade of both sides of the fence (for fences between two (2) private properties). For fences in flood hazard zones where the Building Code requires the finish floor of a building to be constructed at or above the top of the flood plain, fence height shall be measured from the top of the flood plain.

B. Prohibited fence and wall materials.

Barbed wire or similar fencing with sharp, protruding objects capable of cutting or puncturing a person is prohibited. Such objects shall not be attached to, imbedded in, or laid upon any fence or wall. This restriction does not include decorative wrought iron.

C. Fence Height Limitations. The limitations in Table 40-3 shall not apply in the following instances:

1. Where a greater height is required by any other City ordinance.

2. Where a greater height is required by a conditional approval of a permit pursuant to this Title or is required by State or Federal law.

3. Where a wall return of greater height is allowed.

4. In corner cutoff areas, chain link and wrought iron/metal tubing fences more than three feet (3′) in height are allowed if they do not obstruct visibility.

Table 40-3
Fence Standards MFR-L and MFR-M Zones

Legend: Feet = ft. Square feet = sf. **Property Line (Location)**	**Standard**		**Notes and Exceptions:** See LBMC Section 21.43.020 for additional regulations on fence height limits; corner cutoffs must be provided in all required instances.
	MFR-L	**MFR-M**	
Front	0 ft.	A. 4 ft.	≥50% transparency required
	8 ft.	B. 6 ft. 6 in.	
Side Street	0 ft.	C. 6 ft. 6 in.	
Interior Side and Rear	0 ft.	6 ft. 6 inches; 8 ft. adjacent to non-residential districts	
Side and Rear adjacent to alley, flood control channel, or other public right-of-way other than a street	0 ft.	8 ft.	
Side and rear adjacent to Neighborhood Connector or greater street classification	0 ft.	8 ft.	

(ORD-24-0015 § 1(Exh. A), 2024)

22.40.050 Accessory Buildings.

The following are the applicable regulations for accessory buildings in residential zones. These regulations do not apply to Accessory Dwelling Units.

A. Multiple accessory buildings are permitted on a lot. The square footage of all accessory buildings, excluding garages, shall not exceed 25% of the gross floor area of the primary building(s).

B. Accessory buildings and garages shall not be used for living area, habitation or sleeping purposes. An accessory building or garage is permitted to have electrical, gas, water, and sewer connections to provide the following activities:

1. Lighting, laundry machines, laundry tubs, and a hot water heater.

2. A half bathroom, limited to a water closet (toilet) and a lavatory sink.

(ORD-24-0015 § 1(Exh. A), 2024)

22.40.060 Parking and Vehicular Access Standards.

A. General Provisions - Parking.

The provisions of this Section shall apply to all proposed and established land uses, buildings and structures and shall be the minimum standards for all off-street parking and loading. Table 40-4 establishes minimum vehicle parking requirements by use. Where the standards of this chapter are silent, all other requirements of Chapter 21.41 shall apply.

B. Calculations. In the calculation of parking requirements, fractional numbers of parking spaces, 0.5 or greater, shall be rounded down to the nearest whole number.

C. Types of Parking. Required parking may be provided with enclosed garage, covered and uncovered parking. Covered parking may include parking provided under a carport or in an enclosed garage. Uncovered parking may comprise up to 50% of the required parking of a development project. Uncovered parking may include parking such as surface parking.

D. Guest Parking. On-street parking abutting the lot shall be considered as guest parking according to the standards for parallel parking spaces when all access to on-site parking is taken from an alley or located on a corner lot and the site is outside of the parking-impacted area. On-street parking abutting the site shall not be considered as guest parking when the street is a major, minor or secondary highway as defined by the Long Beach Mobility Element.

E. Access. Street curb cuts to access parking or circulation shall be limited to one (1) per lot. Where alley access is available garages and circulation shall be accessed from the alley.

F. Required number of spaces. Table 40-4 establishes minimum vehicle parking requirements by use. Parking spaces required for multiple uses on a lot shall be calculated separately for each use, and the parking required shall be the sum of all that required for all such uses, unless otherwise permitted by this Section or Section 21.41.223 of the Municipal Code.

G. Shared parking. Required off-street parking facilities may be shared between two separate land uses upon demonstrating through a signed affidavit that the uses utilize the parking spaces at different times. Shared parking must be provided on the same parcel or integrated as part of the development site.

H. Garage Requirements. Refer to Table 40-5 for Garage Standards. Additionally, garages shall adhere to the following:

a. Garage access shall be limited to centralized driveways and/or alleys.

b. Dwelling units may be located above a garage provided the minimum setbacks for living space are met.

c. Internal garage height dimensions shall be consistent with the building code, and the other garage dimensions shall be sufficient to accommodate standard and compact parking stalls as defined in Title 21.

d. Parking stalls provided in Stacked and/or car-lift, automated garages, and tandem parking configurations shall all count toward required number of parking stalls.

I. Bicycle Parking Requirements. Refer to Table 40-4 for required bicycle parking ratio. Bicycle parking shall be provided on site and shall not encroach into the public right-of-way. Additionally, bicycle parking shall adhere to the following:

a. Bicycle parking located within buildings, garages, or private yard spaces that are not accessible to the public shall be considered secure spaces and do not require additional security devices.

b. Bicycle parking provided within a unit may be a dedicated space or an anchored way to secure the bicycle to a wall or ceiling.

c. All other bicycle parking that does not meet the requirements of Subsections a or b above shall be permanently anchored with the ability to secure both the wheels and the frame and shall meet the requirements of CALGreen.

Table 40-4
Parking Standards
Legend:
Acre=ac
Feet = ft.
Dwelling unit = du
Square feet = sf.
Maximum= Max
Minimum=Min

	Zones		Metric (Per Unit or Bed)	Notes and Exceptions: See LBMC Section 22.40.060.B for regulations on rounding fractional numbers.
	MFR-L	MFR-M		
Minimum Vehicle Parking Requirements				
0 to 1 bedroom	0.75		Per unit	
2 bedrooms	1.25		Per unit	
3 bedrooms or more	1.5		Per unit	
Special group residence, assisted living, congregate care	0.33		Per bed	
Senior housing	0.5		Per bed	
Live/Work	1.5		Per unit	
Guest parking	1		Per every 6 units	
Minimum Bicycle Parking Requirements				
Bicycle parking space	1		Per every 5 units	50 percent of bicycle parking shall be secure spaces. Bicycle parking spaces shall be located near main entrance with good visibility, not to obstruct auto or pedestrian movement.

Table 40-5 Garage Standards

Type of Garage	Street Setback	Interior/Rear/Alley Setback
On grade	18 ft. from property line to exterior face of garage door (individual or shared, at or below grade); garage structure (not door) same as front or side street setback to building	Consistent with Building Setback per zone
Semi-subterranean	Consistent with Building Setback per zone	Consistent with Building Setback per zone
Subterranean	0 ft.; adequate queuing required, drive access must comply with Building code requirements	

(ORD-26-0018 § 15, 2026; ORD-24-0015 § 1(Exh. A), 2024)

CHAPTER 22.41. GENERAL PROVISIONS - DEVELOPMENT STANDARDS (NI ZONES)

22.41.010 Tables 41-1 through 41-5 of this Chapter establish development standards.

1. Applicability. This Chapter establishes development standards applicable to all new construction and additions to existing development in the neo-industrial districts. Tables 41-1 through 41-5 denote development standards for NI-1 and NI-2 zones.

2. Intensity (FAR). The intensity of neo-industrial development shall not exceed the maximum FAR.

a. Gross floor area dedicated to parking structures shall not be included in the FAR calculation.

3. Building Height. Building height shall be regulated by maximum number of stories and the dimensional height of the structure.

a. Building height shall be measured as defined by Section 21.15.1190 (Grade) and 21.15.1330 (Height of Building).

b. Measurement of building height in the NI-1 and NI-2 districts shall exclude the following features:

i. Vertical architectural projections (building elements added for architectural interest without adding interior floor area, such as towers and cupolas), not to exceed 10 feet above parapet height.

ii. Horizontal architectural projections which cantilever 5 feet or less from the exterior wall (or rooftop feature) shall not be included as part of the exterior wall line.

iii. Rooftop guard rails.

iv. Permanent unenclosed roof deck features located 2 feet or more from the exterior wall plane (including shade or partial covering structures, or similar features) up to 50% of the principle building footprint.

v. All mechanical equipment (including solar panels or other alternative energy equipment/ infrastructure, elevator and mechanical equipment penthouses, and all associated screening features).

4. Development Sites.

a. Development created through lot consolidation shall be developed as a unified site.

b. Consolidation of sites is permitted and encouraged, consistent with subdivision regulations, however consolidation shall avoid creating isolated parcels that are not part of the development site.

c. At the time of lot consolidation, the new development site shall identify primary and secondary (if applicable) frontages as defined in 22.30.140.

5. Green Building Standards New construction and renovations shall be subject to the requirements of 21.45.400 (Green Building Standards) based on project type and gross square footage thresholds as outlined by 21.45.400.

6. Outdoor storage and activities. Outdoor storage and activities for NI zones shall be permitted subject to the following standards contained herein:

a. Outdoor storage. Accessory outdoor storage of goods, materials, or equipment shall be permitted only in the side and rear yards. However, no materials shall be stored within any required street side yard setback. All outdoor storage areas shall be completely screened from view from public rights-of-way and adjacent properties with screening the same height as the materials being stored. Stored goods and materials shall not exceed a stacking height of eight feet (8′) unless a permit is approved through Subsection 22.41.020.5.e.

b. Activities. No outdoor production, processing, or manufacturing activities associated with a business shall be permitted at any time. All such activities must be conducted within an entirely enclosed structure. This restriction shall not apply to loading operations or other necessary support functions of a business.

c. Screening Required. Screening shall be required for all outdoor storage and activities associated with industrial use development as identified herein subject to Subsection 22.41.020.5.

Table 41-1
Development Standards: Intensity

	Zones		Notes and Exceptions Code section numbers reference the Long Beach Municipal Code
	NI-1 (Neo-Industrial Focused)	NI-2 (Flexible Designation: Neo-Industrial + Commercial)	
Lot Size			
Minimum Lot Size	5,000 square feet		Only applies to subdivision actions under Title 20.
Height/Stories			
Maximum Building Height	40 ft. to 65 ft.		Refer to Figure 3 (Citywide Height District Map)
Floor Area Ratio			
Maximum Permitted Floor Area Ratio	1.0	1.0	Sections 21.15.1070 and 21.15.1090

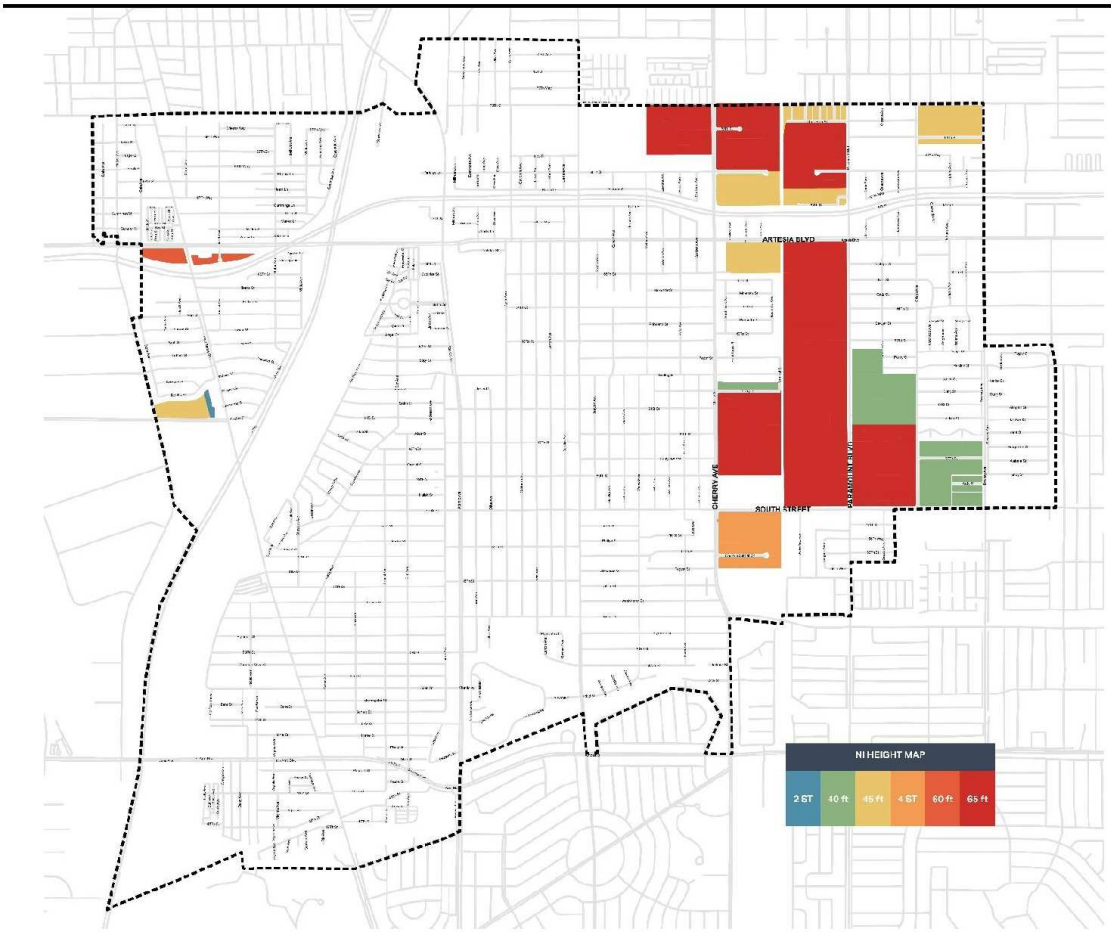


Figure 3 Height Development Standards - Refer to Table 41-2

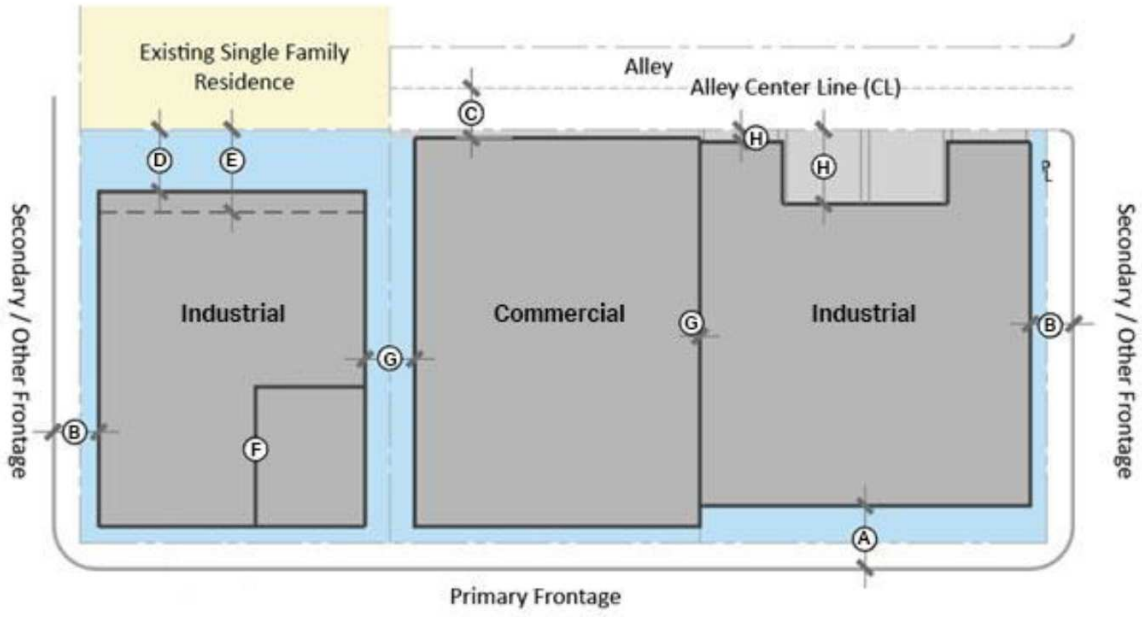


Figure 4 Setback Development Standards - Refer to Table 41-2

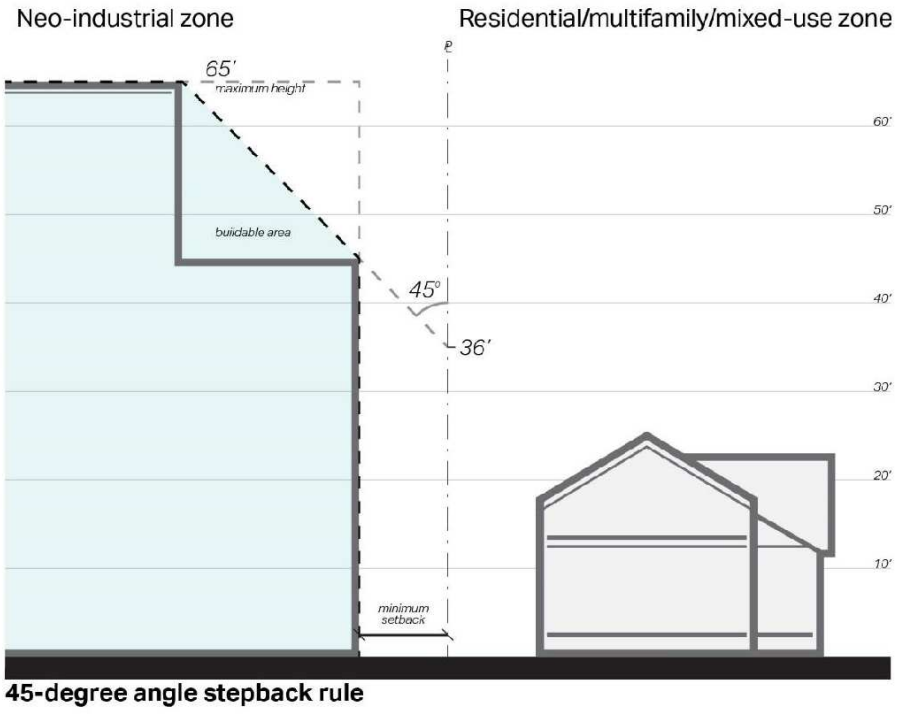


Figure 5 Stepback Development Standards - Refer to Table 41-2

Table 41-2
Development Standards: Building Placement & Activation

	Zones		Notes and Exceptions Code section numbers reference the Long Beach Municipal Code
	NI-1 (Neo-Industrial Focused)	NI-2 (Flexible Designation: Neo-Industrial + Commercial)	
Minimum Required Measured Property Line to Building Face Setbacks (Feet)[1]			
STREET SETBACKS			
Buildings with Height up to 36 Feet			
A Building Setback on a Primary Street	10 ft.	12 ft.	Refer to Figure 4 & 5
B Building Setback on a Secondary Street	6 ft	6 ft.	Refer to Figure 4
Buildings with Height greater than 36 Feet			
A Building Setback on a Primary Street	15 ft.	15 ft.	Refer to Figure 4 & 5
B Building Setback on a Secondary Street	16 ft.	16 ft.	Refer to Figure 4
INTERIOR BUILDING SETBACKS (FEET)[1]			
C Alley	6 ft.; 32 ft. minimum building to building dimension across an alley		Minimum alley dimension shall not be less than 20 ft.
Adjacent to existing zones where residential uses are permitted, where not separated by an alley			
D Ground Floor	20 ft.	20 ft.	
E Upper Floors	Above 36 ft. from finished grade, stepbacks shall apply consistent with Figure 4 (45-degree angle diagram) Measured parcel line to building face		
Adjacent to existing zones where residential uses are prohibited, where not separated by an alley			
F All Other Adjacencies	0 ft.	0 ft.	Measured parcel line to building face
Setbacks between buildings on the same site			
G Building to building	As required by Fire Code and Uniform Building Code		Separation measured building face to building face
REAR PARKING STANDARDS			
H Rear Parking	24 feet minimum		From edge of centerline of alley to garage or roll-up door face
LOADING DOCKS STANDARDS			
I Loading Docks	Shall be provided for all uses that require truck loading spaces per LBMC 21.41.345 or that contain more than forty thousand (40,000) square feet of GFA in a single lease over ownership area.		Refer to Section 21.41.310-370
J Loading Space Standards	Passenger = 9 feet by 19 feet, 10-foot clearance Large Truck 14 feet by 60 feet, 15-foot clearance Reduced Truck = 12 feet by 25 feet, 12-foot clearance		
K Loading Sizes	2 sizes of loading spaces		
L Loading Location	Outside of required aisles, circulation areas or within required setback areas adjacent to residential use or zoned properties.		
M Loading Backing into street	Loading areas may be designed to allow trucks to back into the local or collector street subject to approval from Director of Public Works		
N Loading Turning Radius	Loading areas shall be located to provide an adequate turning radius. Adequate turning radius means one which allows a vehicle to maneuver without backing into a street or without backing into the loading space from a street.		
O Loading Spaces Screening	Loading spaces shall be separated from adjoining, abutting or adjacent residential districts by a building or masonry wall not less than six feet (6′) in height.		

Notes: 1. Projections are permitted in the required setbacks in accordance with Section 21.32.220(C) of the Zoning Regulations.

(ORD-24-0015 § 1(Exh. A), 2024)

22.41.020 Site Design & Layout.

1. Blank Walls.

a. A blank wall is a continuous blank wall, without windows, doors, or any other architectural articulation.

b. All blank walls over 20 feet shall be screened with landscaping appropriate to the height of the wall. The landscaping shall have a minimum landscape strip of 5 feet in depth.

c. Buildings with ground-floor above 15 feet shall have landscaping to grow to a height of maturity of 10 feet to provide sufficient screening.

d. Required landscaping areas required by section 22.41.040 must include trees or shrubs of a spacing of 20 feet or less. The landscaping must achieve a height of 10 feet at maturity.

e. Interruptions in landscaping screening are permitted at building entrances and plazas to accommodate employee amenities.

2. Modulation.

a. Modulation refers to creating variations in the facade (outer wall) of a building as a means of breaking up the apparent bulk of the continuous exterior walls. Modulation includes, but is not limited to, projections or recessions in the façade of at least 2 feet in depth.

b. Building facades over 80 feet in length and over 2 stories in height shall provide modulation at a minimum of 15% of the Primary Façade Plane.

c. The Primary Façade Plane is defined as the vertical plane with the greatest surface area above the ground floor.

d. Modulation is not required to be continuous or open to the sky and may be recessed or projected.

e. Additional façade breaks beyond the minimum required may count towards the modulation requirement.

3. Transparency. At least 15% of each façade facing a public street should be comprised of transparent openings unless otherwise prohibited by use-specific regulations.

a. Transparent openings may include windows and doors with clear glass or façade openings with a minimum depth of 4 feet.

b. Windows shall be recessed by at least 2 inches from the façade; flush windows may be allowed subject to the discretion of the Site Plan Review Committee.

c. The use of mirrored or highly reflective glazing is prohibited.

d. Semi-transparent or frosted treatments are permitted to shield up to 50% of the transparent opening to manage private or security needs.

4. Light Design for Safety

a. In addition to the following standards, all lighting shall be consistent with the latest Illuminating Engineering Society of North America (IES) and International Dark Sky Association (IDA) standards to prevent over-lighting of structures and spaces.

b. Glare The following glare standard shall generally apply:

i. Glare standard. Glare is illumination that is caused by all types of lighting and from high temperature processes such as welding or metallurgical refining. Glare may not directly, or indirectly from reflection, cause illumination on other properties that is in excess of a measurement of 0.5 foot-candles of light;

ii. Strobe lights. Strobe lights that are visible from another property are not allowed.

c. Building and/or site design shall include public realm pedestrian lighting to supplement street-lights, contribute to the pedestrian scale of the street, and enhance safety.

(i) Integrate pedestrian lighting along the length of the street and within public realm areas to facilitate visibility for "eyes on the street."

(ii) Light areas to be usable and safe at night and encourage nighttime pedestrian activity. This includes, but is not limited to, curb ramps, crosswalks, bus stops, plazas, paseos, mid-block connections, open spaces, parking lots and structures, seating areas, and pedestrian linkages between these areas.

d. Building design shall integrate building-mounted lighting, consistent with the design and character of the structure, to aid in lighting the following areas:

1. The pedestrian way, including areas along primary or side streets.

2. Pedestrian paths, including mid-block connections, from parking lot areas to the building or street.

3. Parking structure entryways and lobbies.

5. Fences, Walls and Screening. Fences, walls and screening for NI zones shall be permitted subject to the following standards:

a. Fences, walls, and screening within required setback. Fences enclosing permitted outdoor activities, storage, parking, or for security purposes within the street setback are permitted subject to the following conditions:

i. Minimum setback. Minimum setback of 12 inches is required for fences located within the required street setback.

ii. Minimum landscaping. The minimum setback area must provide landscaping with vertical vines or tall shrubs between the fence and the minimum sidewalk width.

iii. Minimum required visibility. Portions of fences greater than 42 inches in height within the street setback shall be at least 75% open; portions 42 inches in height or lower are permitted to be walls.

iv. Fences and/or walls used for required screening shall be a minimum of 6 feet in height.

b. Height Limits. The height of Fences and/or walls shall be subject to the limitations specified in Table 41-3.

Table 41-3 Fence Maximum Height Regulations[1]
***See Chapter 21.43 for Fences and Garden Wall Regulations**

	Zones		Notes and Exceptions Code section numbers reference the Long Beach Municipal Code
	NI-1 (Neo-Industrial Focused)	NI-2 (Flexible Designation: Neo-Industrial + Commercial)	
A Within required street setback - solid fence/wall	3 feet	3 feet	Section 21.43.030
Within required street frontage setback - open fence/wall	12 feet high wrought iron/ metal tubing fence	8 feet high wrought iron/ metal tubing fence	Section 21.43.030
B Abutting residential front yard	3 feet	3 feet	Section 21.43.030
C Abutting residential side or rear yard	10 feet	8 feet	Section 21.43.030
D Other yard	12 feet	10 feet	Section 21.43.030
E Corner cutoff area	3 feet	3 feet	Section 21.43.030

Notes:
1) The limitations shall not apply in the following instances:
Where a greater height is required by any other City ordinance; or
Where a greater height is required by a conditional approval of a permit pursuant to this Title or is required by State or Federal law; or
Where a wall return of greater height is allowed;
In corner cutoff areas, chain link and wrought iron/metal tubing fences more than three feet (3′) in height are allowed if they do not obstruct visibility.

c. Material

(i) Materials. Fences and walls must be constructed of wood, vinyl, brick, masonry, textured concrete or aggregate concrete.

(ii) Prohibited materials. Prohibited materials for fences and walls include barbed wire and those such as corrugated or sheet metal, tires, car doors, or other discarded materials.

(iii) Chain link/wire mesh. A chain link or wire mesh may be used only in combination with plant material of sufficient density to create a year-round opaque screen. Chain link or similar wire fencing is prohibited between the front of a building and a public street but allowed on interior and rear yards.

(iv) Security fencing. Electronic theft fences are allowed.

d. Maintenance

(i) All walls and fences shall be maintained in good condition at all times.

e. Alternative Process

(i) Alternative heights and materials may be permitted for fences or walls pursuant to the Adjustment Process in Section 22.13.104 of the Zoning Code.

(ii) Alternative fence and wall heights and materials may also be approved pursuant to the Adjustment Process in Section 22.13.104 of the Zoning Code if proposed with a new development project.

(iii) Alternatives for fence and/or walls must meet the following minimum criteria:

A) The fence design shall be open wrought iron or other metal pickets;

B) The fence shall allow emergency egress;

C) The fence design shall provide visitor, meter reader and emergency personnel access;

D) The front yard shall have approved landscaping;

E) The applicant shall restore any missing street trees; and

F) The fence shall have self-closing, self-locking gates.

6. Trash and Recycling. In addition to Chapter 8.60 Solid Waste, Recycling and Litter Prevention, these provisions prescribe standards for adequate, accessible and convenient locations for the collection and storage of trash and recyclable materials with containers and enclosures which are compatible with surrounding land uses and structures.

a. Standards. Adequate receptacles shall be provided to accommodate the trash and recycling generated on a site. All required receptacles shall be developed according to the following standards:

i. Minimum Size. Each receptacle area shall have adequate area to contain a size appropriate to the demands of the use and to accommodate separation of materials for trash and recycling. The minimum size of trash and recycling areas shall be as identified in Table 41-4 below.

Table 41-4 Minimum Trash and Recycling Material Storage Areas

Gross Floor Area Per Development (Square Feet)	Minimum Trash Area Per Development (Square Feet)	Minimum Recycling Area Per Development (Square Feet)	Total Minimum Area Per Development (Square Feet)
0—5,000	12	12	24
5,001—10,000	24	24	48
10,001—25,000	48	48	96
25,001—50,000	96	96	192
50,001—75,000	144	144	288
75,001—100,000	192	192	384
100,001+	192 plus 48 square feet for every 25,000 square feet of building area above 100,001	192 plus 48 square feet for every 25,000 square feet of building area above 100,001	384 plus 96 square feet for every 25,000 square feet of building area above 100,001

ii. Screening. All receptacles shall be enclosed on at least three (3) sides by a solid masonry wall of minimum height five feet, six inches (5'6"). The receptacle shall not be visible above the wall. A visually solid gate shall be provided.

iii. Location. All trash and recycling areas must adhere to the following locational standards:

A) Shall not be located in required street yards.

B) Shall be located and arranged to be accessible to occupants and haulers.

iv. Landscaping. All trash and recycling areas if visible from a street shall be further screened with a two foot (2') wide landscape strip. The strip shall be planted with shrubs of minimum five (5) gallon size which grow to a height of four feet (4'), with vines planted to the satisfaction of the Director of Community Development.

v. Signage. One sign identifying the material storage area is required for each area and shall be posted on the exterior of the material storage area near the point of access. The maximum sign copy area permitted for each sign shall be one square foot.

b. Review procedures. Plans indicating the proposed design, size and location of both new and existing recycling and trash enclosures shall be submitted to the Director of Community Development to be reviewed concurrently during the appropriate review procedure required for the proposed development. For those development projects not requiring planning applications but for which building permits are required, plans indicating the design, size and location of recycling and trash enclosures shall be submitted to the Building Official, to be included with the building permit plan check submittal for the proposed development project.

(ORD-24-0015 § 1(Exh. A), 2024)

22.41.030 Parking and Vehicular Access Standards.

1. General Provisions - Intent. The Parking standards of this Chapter are intended to allow for infill and adaptive re-use development through flexibility of off-street parking location and provision of the minimum required number of spaces.

2. Parking Requirements. Table 41-5 establishes minimum vehicle parking requirements by use.

a. Uses not listed, and all loading requirements, shall be regulated by Chapter 21.41 - Off Street Parking and Loading Requirements.

b. If different land uses are part of the same project, the parking requirements for each land use are applicable and will be added together to determine the total parking requirements for the project.

c. Calculations. In the calculation of parking requirements, fractional numbers of parking spaces, greater than 0.5, shall be rounded down to the nearest whole number.

d. Change of Use. No new parking shall be required for changes of use of any existing square footage within a building more than 10 years old.

3. Parking Setback Standards

a. Requirements. Table 41-6 establishes minimum required parking setbacks.

4. Parking Location and Access.

a. Parking should generally be provided through a combination of off-street spaces behind buildings and park-once/public parking.

b. Surface parking lots are not permitted between the building and the Primary Frontage.

c. Generally surface parking should be located behind the building, internal to the block, wrapped with active uses along the public frontages, or below-grade.

d. Access to parking should be primarily from side streets or alleys. If access from side streets is not possible due to lot location and/or configuration, vehicular access shall be constructed to minimize the disruption of the pedestrian right-of-way along Primary Frontages.

5. Alternatives to Parking Requirements.

a. Modification by Adjustment Process. Parking exceptions to the off-street parking development standards shall be subject to the procedures established for in Section 22.13.104 of the Zoning Code.

b. On-site alternatives to required vehicle off-street parking. One or more of the following alternatives may be substituted for required off-street parking spaces on the same parcel or integrated development site as the land use the spaces serve:

i. Additional bicycle parking. Four non-required bicycle parking spaces may be substituted for one on-site vehicle parking space, up to a maximum of two spaces or 10% of the required on-site vehicle parking spaces, whichever is greater.

ii. Solar rooftop or shade structures over parking. Developments that provide a solar rooftop or shade structure on-site may request a 10% reduction of the required on-site vehicle parking spaces.

iii. Carsharing. One carshare space may be substituted for four (4) required on-site vehicle parking spaces. "Carshare space" means a parking space reserved for a vehicle that can be rented or reserved for short periods of time, such as by the hour or minute.

A) Availability of Carshare Spaces. The carshare spaces shall be made available, at no cost, to a certified car-share organization for purposes of providing car-share services for its car-share service subscribers.

B) Location. Required designated parking spaces for carsharing vehicles, shall be conveniently on the building site and located close to building entrances. Each parking space shall include surface identification, painted with the same paint used for defining the parking stall, with the lower edge of the identification aligned with the end of the parking space and visible beneath a parked vehicle.

C) Plan Review. Carshare spaces shall be identified on the project site plan.

D) Identification. The identification shall include the following characters: CARSHARE SPACE

E) Posted Signs. Signs must be posted indicating these spaces are reserved for carpool use.

F) List of Carshare Projects. The Department of Community Development shall maintain a publicly accessible list, updated quarterly, of all projects approved with required off-street carshare parking spaces. The list shall contain the Assessor's Block and Lot number, address, number of required off-street carshare parking spaces, project sponsor or property owner contact information and other pertinent information as determined by the Zoning Administrator.

iv. Scooter and motorcycle parking. One scooter or motorcycle space may be substituted for one on-site vehicle parking space, up to a maximum of two spaces or 10% of the required on-site vehicle parking spaces, whichever is greater.

v. Shared parking. Required off-street parking facilities may be shared between two separate land uses upon demonstrating that the uses utilize the parking spaces at different times through a signed affidavit.

vi. Shared bicycles. Shared bicycles provided on-site for the use of employee commutes and off-site trips may be substituted for up to a maximum of two spaces or 10% of the required on-site vehicle parking spaces, whichever is greater. Two shared bicycles are equivalent to one on-site vehicle parking space.

vii. Tandem parking. Pursuant to Section 21.41.235 of the Zoning Code, tandem parking is permitted as follows:

1) Tandem parking serving an industrial or manufacturing use shall only be in areas specifically designated for employee long-term parking. Such parking shall only be located on the same site as the use for which the parking is provided.

2) Tandem parking, where permitted, shall comply with the following standards:

A) Handicapped parking shall not be in tandem.

B) No more than fifty percent (50%) of the required parking spaces shall be permitted to be in tandem.

c. Off-site alternatives to vehicle off-street parking. Off-street parking may be located on a parcel other than the parcel or integrated development site served by the off-street parking, if it is located within the distances specified, and it complies with the requirements stated below:

i. Joint Use and Parking Agreements. Within the NI Zones, new development and adaptive reuse development are highly encouraged to utilize joint use and parking agreements to the greatest extent possible subject to Section 21.41.223 of the Zoning Code.

d. Driveway Locations. Driveway locations for NI Zones shall be provided pursuant to Section 21.41.251 of the Zoning Code.

i. Driveways Accessing a Local or Collector Street. Driveways which access a Local or Collector street, as designated in the Mobility Element of the General Plan, shall be located such that the edge of the access driveway shall be either at least five feet (5′) from the end of the curb return or at least twenty-five feet (25′) from the intersection of two (2) non-arterial streets, whichever is greater. If the nearest intersection includes an Arterial or greater street, then the regulations of Subsection d.ii below shall apply.

ii. Driveways Accessing Arterial and Greater Streets.

A) Two-Way Driveways. For lots with one hundred twenty-five (125) or more feet of street frontage, two-way driveways shall be located not less than ninety feet (90′) from any intersection. For lots with less than one hundred twenty-five feet (125′) of street frontage, the driveway shall be located not less than two-thirds (⅔) of the width of the lot from the intersection.

B) One-Way Driveways. One-way driveways shall be located not less than thirty-five feet (35′) from any intersection. Movements shall be restricted to either right turns in or right turns out.

Table 41-5 Vehicular Parking Requirements
***City standard in Chapter 21.41**

Use	Minimum Parking Space Requirement		Notes and Exceptions See LBMC Section 22.41.030.2.b for regulations on rounding fractional numbers.
	NI-1 (Neo-Industrial Focused)	NI-2 (Flexible Designation: Neo-Industrial + Commercial)	
Non-Residential			
Basic Sales and Service, Small Format			
≤6,000 Sq. Ft. GFA	-	2	Per 1,000 sq. ft.
>6,000 sq. ft. GFA	2	3	Per 1,000 sq. ft.
Grocery and Food Market			
≤6,000 sq. ft GFA	-	2	
>6,000 Sq. Ft. GFA	2	2	
Restaurant & Ready-To-Eat Foods, without drive-thru or entertainment			
≤2,500 Sq. Ft. GFA	-	-	
2,501≤10,000 Sq. Ft. GFA	2	2	Per 1,000 Sq. Ft.
>10,000 Sq. Ft. GFA	2	4	Per 1,000 Sq. Ft.
Outdoor Dining	-	-	
Religious Assembly			
≤2,500 Sq. Ft. GFA	-	*	Per 1,000 Sq. Ft.
2,501≤25,000 Sq. Ft. GFA	3.33	*	Per 1,000 Sq. Ft.
> 25,000 Sq. Ft. GFA	*	*	Per 1,000 Sq. Ft.
Fitness Studios			
≤2,500 Sq. Ft. GFA	-	-	
2,501≤10,000 Sq. Ft. GFA	3.33	3.33	Per 1,000 Sq. Ft.
>10,000 Sq. Ft. GFA	4	4	Per 1,000 Sq. Ft.
Medical Office or Clinic/Veterinary Clinic	2	2	Per 1,000 Sq. Ft.
Office, non-medical			
≤20,000 Sq. Ft. GFA	2	2	Per 1,000 Sq. Ft.
>20,000 Sq. Ft. GFA	2	2	Per 1,000 Sq. Ft.

Table 41-5 Vehicular Parking Requirements *City standard in Chapter 21.41			
Use	Minimum Parking Space Requirement NI-1 (Neo-Industrial Focused)	Minimum Parking Space Requirement NI-2 (Flexible Designation: Neo-Industrial + Commercial)	Notes and Exceptions See LBMC Section 22.41.030.2.b for regulations on rounding fractional numbers.
Hotel	0.75	1*	Spaces per guestroom
Urgent Care Facility	2	2	Per 1,000 Sq. Ft.
Pop-Up Shop/Stand/Itinerant Vendor	-	-	
Historic Buildings & Adaptive Reuse of Non-Designated Structures			
Converted historic landmark buildings	1. No additional parking. 2. An exception for a reduction of existing parking for purposes of providing disabled access parking may be considered.		
Rehab/reuse of older non-designated buildings	1) Exemption from providing additional parking may be considered, subject to the following conditions: a. Age: Older than 45 years old at time of application. b. Condition: Not substantially modified. c. Contributing features of historic or architectural interest; identified in a city-wide survey as "contributing" or "of interest". 2) An exception for a reduction of existing parking for purposes of providing disabled access parking may be considered.		
Industrial			
Businesses engaged in processing, fabrication, assembly, treatment, and packaging	2	2	Per 1,000 Sq. Ft.
Cannabis			
All cannabis related uses	1	-	Per 1,000 Sq. Ft.
Cannabis distributors	1	-	Per 1,000 Sq. Ft.
Cannabis manufacturing/processing	1	-	Per 1,000 Sq. Ft.
Cannabis testing	1	-	Per 1,000 Sq. Ft.
Construction			
All construction related uses except as identified herein	2	2	Per 1,000 Sq. Ft.
Manufacturing			
All manufacturing uses except as identified herein	2	2	Per 1,000 Sq. Ft.
All heavy manufacturing	2	-	Per 1,000 Sq. Ft.
Services			
Maintenance and repair services	2	2	Per 1,000 Sq. Ft.
Support services associated with manufacturing and industrial uses	2	2	Per 1,000 Sq. Ft.
Technology			
All technology uses except as listed below	2	2	Per 1,000 Sq. Ft.
Research & development	3	3	Per 1,000 Sq. Ft.
Transportation and Utilities			
All transportation related uses with equipment indoors only	2	2	Per 1,000 Sq. Ft.
All transportation related uses with equipment outdoor storage	2	2	Per 1,000 Sq. Ft. GFA
All utilities and services	-	-	
Warehousing and Wholesale			
Warehousing	1	1	Per 1,000 Sq. Ft. GFA; Office area ≥25% calculated separately
Wholesale trade	3	3	Per 1,000 Sq. Ft. GFA

Table 41-6 Parking Setback Standards	Zones		Notes and Exceptions Code section numbers reference the Long Beach Municipal Code
	NI-1 (Neo-Industrial Focused)	NI-2 (Flexible Designation: Neo-Industrial + Commercial)	
Required Minimum Parking Setback, Measured Parcel Line to Parking (Feet), applicable to surface or structured parking			
Primary Frontage, Surface Parking	20 ft.	25 ft.	
Primary Frontage, Parking Structure	10 ft.	15 ft.	
Secondary Frontage	6 ft. landscape setback required between sidewalk and parking shall be landscaped or decoratively hardscaped (not asphalt)		Vehicle shall not overhang sidewalk; Refer to Chapter 21.42, for additional landscape requirements.
Alley	0 ft.		
Adjacent To:			
Residential District	5 ft.	5 ft.	Landscaping required; Refer to Table 41-7
Non-residential District	0 ft.	0 ft.	

(ORD-26-0018 § 16, 2026; ORD-24-0015 § 1(Exh. A), 2024)

22.41.040 Landscaping Requirements.

1. Intent. The landscape requirements are intended to encourage the planting of appropriate new vegetation and the preservation of existing vegetation to enhance the built environment and to support greening in the community.

2. Applicability. The provisions of this section apply to all development that is within the NI Zones. Table 41-7 outlines landscape requirements.

3. Model Water Efficient Landscaping Ordinance Requirements. Property owners or their building or landscape designers, including anyone requiring a building or planning permit, plan check, or landscape design review from the City, are constructing a new (Single-Family, Multi-Family, public, institutional, or Commercial) project with a landscape area greater than five hundred (500) square feet, or rehabilitating an existing landscape with a total landscape area greater than two thousand five hundred (2,500) square feet, shall comply with Sections 492.6(a)(3)(B) (C), (D), and (G) of the MWELO, including sections related to use of Compost and mulch as delineated in Section 21.42.060 of the Long Beach Municipal Code.

Table 41-7 Landscaping Requirements	Requirements		Notes and Exceptions Code section numbers reference the Long Beach Municipal Code
	NI-1 (Neo-Industrial Focused)	NI-2 (Industrial + Commercial)	
On-Site Street Frontage			
Minimum Landscape Strip	5 feet	7 feet	Within the required setback area along all street frontages, except at driveways; minimum landscape strip not inclusive of required curbs
Minimum Tree Count	1 tree	1 tree	for every 15 feet of street frontage
Additional tree requirements for site with frontage larger than 100 feet	1 tree	1 tree	for every additional 100 feet of Property Line Street frontage
Minimum box size	1 tree with minimum 36-inch box size	1 tree with minimum 36-inch box size	Minimum height of 10 feet at maturity; substitutions allowed pursuant to 21.42.040, LBMC

Table 41-7 Landscaping Requirements	Requirements		Notes and Exceptions Code section numbers reference the Long Beach Municipal Code
	NI-1 (Neo-Industrial Focused)	NI-2 (Industrial + Commercial)	
Minimum Yard Landscape Coverage	80%	80%	Allows a combination of softscape and hardscape and must meet LID requirements, as applicable. Definitions pursuant to Chapter 21.42, LBMC.
On-Site Other Yards			
Minimum Tree Count	1 tree	2 trees	for every 50 linear feet
Minimum box size	24-inch box	24-inch box	Substitutions allowed pursuant to 21.42.040, LBMC
Minimum Yard Landscape Coverage	60%	60%	Allows a combination of softscape and hardscape and must meet LID requirements, as applicable. Definitions pursuant to Chapter 21.42, LBMC.
Parking Lots			
Minimum Ratio	1 evergreen drought tolerant canopy tree	1 evergreen drought tolerant canopy tree	for every 4 parking spaces
Landscape Coverage	50% tree canopy shade coverage of all parking stalls		
Cluster	1 cluster for each 100 feet of a row or double row of parking spaces shall be provided		
Minimum planter size	4 feet by 4 feet		
Screening Required	3 foot tall masonry wall, landscaped berm or hedge shall be provided when parking abuts a street frontage		Refer to Section 21.41.266.C
Wheel Stops	Vehicles shall be permitted to overhang 2 feet over required landscaped areas behind wheel stops		Refer to Section 21.41.269
Parking Structures			
Minimum landscape strip	6 foot wide landscaping strip on all sides of the structure except at driveways and walkways		Note - The 6 foot wide landscape strip does not include the required curb/mow strip.
Minimum Tree Count	1 tree for every 20 feet of perimeter of the structure		
Abutting Residential Districts and Schools			
Minimum landscape strip	5 feet		Buffer along all yard areas abutting or adjacent to an alley, a residential district or school
Minimum trees	15 feet on center with broadleaf evergreen trees		
Minimum box size	24" box size		
Sidewalk/Parkway			
Street Trees	1 large canopy street tree for every 25 feet of property line length		
Minimum walk zone width	5 feet adjoining to curb		
Minimum parkway width	4 feet wide between the sidewalk and the curb		
Minimum box size	24" box size		
Maximum groundcover height	8"		
Maximum shrubbery height	32"		
Maximum Nonliving Material	60%	40%	

(ORD-24-0015 § 1(Exh. A), 2024)

22.41.050 Operational Performance Standards.

1. Intent. The intent of this section is to establish operational performance standards for air emissions, combustibles and explosives, gases, dust, liquid waste, noise, vibration, odor, toxic or

noxious matter, and humidity. The purpose of this section is to identify appropriate standards to ensure compatibility amongst the various uses with consideration of environmental and health factors prioritizing community needs. These operational performance standards are designed to minimize various potential operational impacts of land uses and development within the City and promote compatibility with adjoining areas and land uses.

2. Applicability. The provisions of this section apply to all new and existing land uses, in all NI zones, unless an exemption is specifically provided.

a. Air Emissions. Any emission of dust, dirt, or smoke shall comply with all state and federal regulations, including the South Coast Air Quality Management District.

b. Combustibles and Explosives. The use, handling, storage, and transportation of combustibles and explosives shall be approved by the Fire Marshal and comply with all applicable state and federal laws.

c. Gases. The escape or emission of any gas that is noxious, injurious, or destructive is unlawful. In addition, the use, handling, storage, and transportation of gases shall be approved by the Fire Marshal and shall comply with all applicable state and federal regulations

d. Dust. In addition to the LBMC Permit Chapter 18.04 standards related to construction activities, the standards contained herein shall apply to ongoing activities or operations associated with any land use in the NI Zones. Activities that may generate dust emissions (e.g., construction, grading, commercial gardening, and similar operations) shall be conducted to limit the emissions beyond the site boundary to the maximum extent feasible. Appropriate methods of dust management shall include the following, subject to approval by the Building Department.

i. Water all active construction areas twice per day and use erosion control measures to prevent water runoff containing silt and debris from entering the streets and storm drain system;

ii. Cover trucks hauling soil, sand, and other loose material;

iii. Pave, water, or apply non-toxic soil stabilizers on unpaved access roads and parking areas;

iv. Sweep and collect (i.e., vacuum) paved access roads and parking areas daily; and

v. Sweep and collect (i.e., vacuum) streets daily if visible material is carried onto adjacent public streets.

vi. Hydroseed or apply non-toxic soil stabilizers to inactive construction areas;

vii. Enclose, cover, water, or apply non-toxic soil binders to open materials stockpiles;

viii. Limit traffic speeds on unpaved roads to fifteen mph;

ix. Install sandbags or other erosion control measures to prevent silt runoff to public roadways;

x. Replant vegetation in disturbed areas within ten days after project completion;

xi. Install wheel washers for all exiting trucks, or wash off the tires or tracks of all trucks and equipment leaving the site;

xii. Install wind breaks, or plant trees/vegetation at windward sides of construction areas, or avoid removing existing vegetation which acts as a windbreak;

xiii. Suspend excavation and grading activity when winds (instantaneous gusts) exceed twenty mph or dust clouds cannot be prevented from extending beyond the site; and

xiv. Limit area subject to excavation, grading, and other construction activities at any one time.

xv. Limit access to the construction sites, so tracking of mud or dirt on to public roadways can be prevented.

xvi. Projects that have significant construction period exhaust emissions shall reduce fleet average emission rates. Developers or contractors shall provide a plan for approval by the City or demonstrating that the heavy-duty (>50 horsepower) off-road vehicles to be used in the construction project for more than an accumulated forty hours, including owned, leased and subcontractor vehicles, will achieve emission standards similar to in-use equipment that meets CARB certified Tier II standards.

e. Noise. The following noise standards shall generally apply:

i. General. No use shall be established, nor any activity conducted which violates the standards of the City's Noise Control Ordinance—Chapter 8.80 of the Municipal Code.

ii. Hours of Operation Standards. Between the hours of ten (10:00) p.m. and seven (7:00) a.m., industrial businesses shall discontinue operations that produce noise levels at the nearest residential district or hospital property line higher than those permitted under the City's Noise Control Ordinance - Chapter 8.80 of the Municipal Code.

iii. Outdoor paging systems and speakers. Outdoor paging systems and speakers shall not be located within 150 feet of land that is residentially zoned property, or within 150 feet of the property line of a lot where a school or licensed childcare center is located. This standard shall not apply to face-to-face, drive-up teller windows or remote teller systems where all of the following conditions exist:

1) Cashiers and customers have direct, face-to-face contact;

2) Drive aisles are adjacent to the primary structure; and

3) The remote appliance is located under a porte cochere attached to the primary building.

f. Liquid Waste. No liquid shall be discharged into a public or private body of water, sewage system, watercourse, or into the ground, except in compliance with applicable regulations of the Regional Water Quality Control Board.

g. Vibration. The following vibration standard shall generally apply:

i. Vibration standard. Continuous, frequent, or repetitive vibrations which produce earthborn vibrations that exceed the following displacements shown in Table 41-8.

Table 41-8 - Vibration Standards

Frequency (cycles per second)	Displacement (inches)
0 to 10	0.00020
10 to 20	0.0016
20 to 30	0.0010
30 to 40	0.0006
40 and over	0.0005

ii. General. This standard means that a person of normal sensitivities should not be able to feel sustained vibration when located on residentially zoned property.

iii. Exceptions. Vibrations lasting less than five minutes per day are also exempt.

iv. Measurement. Seismic or electronic vibration measuring equipment may be used for measurements when there are doubts about the level of vibration.

h. Odor. The following odor standard shall generally apply:

i. Odor standard. Continuous, frequent, or repetitive odors detectable after the odorous air has been diluted with five or more volumes of odor-free air shall be a violation of these standards;

ii. Exceptions.

1) An odor that is detected for less than 15 minutes per day is exempt;

2) No violation shall occur where the person who, or the business which, causes or allows the emission of odorous air contaminants is employing the best available treatment, maintenance, and control that is currently available to maintain the lowest possible emission of odorous gases.

i. On-Site Containment of Materials and Waste. No material or waste shall be deposited on a property in such a form or manner that it may be transferred off the property by natural causes or forces such as wind or rain. All materials or wastes which might cause fumes or dust, or which constitute a fire hazard, or which may be edible by or otherwise attractive to rodents or insects, shall be stored outdoors only in closed containers approved by the Director of Community Development.

j. Toxic or noxious matter. The emission of toxic or noxious matter into the atmosphere shall be in accordance with the limits established by the Department of Environmental Health/Protection. In addition to such emission limits, the emission of such matter shall be so controlled that no concentration at or beyond the lot lines shall be detrimental to or endanger the public health, safety, comfort, and other aspects of general welfare, or cause damage or injury to property.

k. Humidity, heat and glare. Any activity producing excessive humidity in the form of steam or moist air, or producing intense heat or glare, shall be carried out in such a manner as not to be perceptible at or beyond any lot line.

3. Measurements of impacts. The following requirements with respect to the measurement of impacts shall also apply:

a. Measurements for compliance with these standards are made from the property line or within the property of the affected site. Measurements may be made at ground level or at habitable levels of buildings; and

b. Where the City does not have the equipment or expertise to measure and evaluate a specific complaint, it may request assistance from another agency or may contract with an independent expert to perform such measurements. The City may accept measurements that are made by an independent expert who is hired by the operator of the off-site impact source.

4. Impact mitigation plan. Where unavoidable circumstances require that portions of a phased project must be left in an unfinished state over a period longer than one year, or any development project has been left in an unfinished state over a period longer than one year, an impact mitigation plan that addresses erosion, security, storage, and appearance of the site shall be submitted to the Director of the Department of Community Development to review for departmental approval.

5. Documentation in advance. In addition to the requirements of Section 21.21.201.D, the Department of Community Development is authorized to require documentation in advance that a proposed use will conform to the standards of this division, in which case all of the following additional information is required of the applicant prior to development approval:

a. A description of the use or activity regarding processes, materials used, storage, waste disposal, types of machinery and other such items as related to off-site impacts, provided, that the applicant is not required to reveal any trade secret that would cause any secret manufacturing procedure, compound or product to become public knowledge and available to competitors;

b. An explanation of any mechanisms or techniques that are proposed to restrict any hazardous or nuisance effects, including the type and location of any abatement devices and recording instruments to measure conformance with the required standard; and

c. An evaluation and explanation which is certified by a registered engineer or architect, as appropriate, that the proposed activity can comply with the operational performance standards or standards in question.

6. Duty to Post Notice. Any person or entity who owns, operates, manages, leases or rents property within the NI Zones shall cause a notice to be permanently posted or displayed on the premises as provided in this chapter. The legible notice, with at least one-quarter inch high letters, shall read: TO SUBMIT A COMPLAINT: CALL (562) 570-CODE (2633) OR SUBMIT ONLINE AT LBCODE.ORG. The notice shall be posted in a prominent and accessible location within an area where it can be easily be seen by the general public.

(ORD-24-0015 § 1(Exh. A), 2024)

22.41.060 Truck Trip Limitations

1. Applicability. The following standards shall apply to commercial and industrial uses in the NI-1 and NI-2 zones.

2. Hours of Operation.

a. On any site that is within 300 feet of a residential district, large trucks shall be permitted between the hours of 7 a.m. to 10 p.m. or as specified in the City's Noise Control Ordinance—Chapter 8.80 of the Municipal Code. This requirement applies to all commercial and industrial uses in the NI-1 and NI-2 zones.

b. The established hours of operation may be modified through the approval of an administrative use permit when an entitlement is already applicable to the project. The base ambient noise level found in the vicinity (without the operation of the trucks) shall not be exceeded during the time the truck activity is proposed.

(ORD-24-0015 § 1(Exh. A), 2024)

22.41.070 Development and Healthy Use Incentives.

The following economic development and healthy communities' incentives shall be applicable to new development within the Neo-Industrial zoning designation of the Uptown area. For the purposes of this section Uptown is defined as all areas of the City north of and inclusive of the northern portion of Del Amo Boulevard, subject to Title 22. For all other areas in the City, Special Use Incentives may only be applicable in areas that have been designated as Community Development Block Grant Areas by the Department of Housing and Urban Development, at the time of application. If a project utilizes multiple incentive options, the maximum cumulative parking reduction allowed for a project cannot exceed more than 30 percent of the total required parking for said project.

1. Community Benefits. Projects that provide the following community benefits may qualify for development incentives. For projects that comply with either or both of the community benefit requirements, said projects will qualify to have the corresponding commercial space(s) exempted from maximum floor area limitations and parking requirements.

    a. Commercial space incentives for workforce development employment strategies. Projects which provide commercial space for enterprises that employ through a local workforce development organization, including the Pacific Gateway Workforce Innovation and Opportunity Network (PGWIN), shall qualify for incentives, subject to the following:

        i. Employment of PGWIN trainees will be a requirement of the occupier of qualified commercial space for a minimum of 5 years.

        ii. Annual certification of compliance with the above shall be completed through PGWIN and provided to the Department of Community Development.

b. Historic market commercial rents for community businesses. Projects which provide commercial rents at a historic market rate to existing local businesses shall qualify for the corresponding incentives, subject to the following:

i. "Historic market rate" rents shall be defined as the average per-square-foot market rent for the local market for the last three years prior to the proposed lease agreement. The maximum annual rent increase shall be limited to 4 percent.

ii. An existing local business shall provide evidence of business history, including business license history, with the City of Long Beach of at least 5 years in the corresponding local market, subject to approval of the Department of Community Development.

iii. Submit annual certification of the lease agreement rate to the City of Long Beach Department of Community Development; a minimum commercial lease length of 5 years is required to qualify.

2. Climate Mitigation and Adaptation Incentives. The City of Long Beach seeks to minimize future greenhouse gas emissions (GHG) from the building sector while lessening the impact of climate change stressors on the local community, including extreme heat, air quality, drought and flooding. In addition to meeting all Green Building Standards contained in Section 21.45.400 of the Zoning Code, parking incentives may be provided to industrial only projects that demonstrate additional strategies to reduce GHG emissions or to lessen the impact of documented climate stressors on the local community.

Projects may qualify for reduction in parking requirements, up to a maximum of 15 percent reduction, in exchange for providing on-site or off-site climate mitigation or adaptation measures commensurate with the savings associated with the requested parking reduction. Measures must meet the geographic needs of the local community as demonstrated in the City's Climate Action and Adaptation Plan. Eligible measures include but are not limited to:

a. Tree planting

b. Photocatalytic tiles to improve air quality

c. Cool roof and/or cool wall materials

d. On-site solar installations (for example as shade structures over parking spaces)

e. Bus shelter amenity improvements

f. Additional bicycle amenities

(ORD-24-0015 § 1(Exh. A), 2024)